SUPPLEMENT NO. 11
VOLUMES I AND II
June 2026

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 72042, enacted October 30, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-5	SH-5
3-1, 3-2	3-1—3-2.1
3-19—3-20.1	3-19—3-20.1
3-79—3-82	3-79—3-81
3-103—3-124	3-103—3-118
3-150.1—3-160	3-151—3-154
3-166.11—3-168	3-167, 3-168
3-191, 3-192	3-191—3-192.5
	VOLUME II
22-13—22-16	22-13—22-16
23-22.1—23-24	23-23—23-24.2
25-111—25-116	25-111—25-116.1
25-373—25-378	25-373—25-378.2
26-1—26-4	26-1—26-4.1
26-15—26-24	26-15—26-24.1
T-299, T-300	T-299—T-301
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-112	I-1—I-111

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 10
VOLUMES I AND II
December 2025

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 72002, enacted June 3, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-3, SH-4	SH-3—SH-5
3-1—3-4	3-1—3-4.1
3-153—3-158	3-153, 3-154
10-1—10-18	10-1—10-18.1
17-2.1	
17-149	VOLUME II
25-1—25-2.1	17-2.1
25-231—25-242	17-149, 17-150
25-363—25-364.1	25-1—25-2.1
25-397—25-401	25-231—25-242.1
T-254.13—T-256	25-363—25-364.1
T-295—T-300	25-397—25-401
SLT:1—SLT:12	T-255—T-256.3
I-1—I-112	T-295—T-300
	SLT:1—SLT:12
	I-1—I-112

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 9
VOLUMES I AND II
July 2025

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71991, enacted February 24, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-3, SH-4	SH-3, SH-4
C-21, C-22	C-21, C-22
C-33—C-38.1	C-33—C-38.1
C-59, C-60	C-59—C-60.1
3-1—3-12.1	3-1—3-12.1
3-117, 3-118	3-117—3-118.1
3-149, 3-150	3-149—3-150.1
3-159—3-166.4	3-159—3-166.11
3-199	3-199, 3-200
4-9—4-52	4-9—4-52
4-116.1—4-177	4-117—4-179
5-77—5-81	5-77—5-81
8-1—8-2.1	8-1—8-2.1
8-53, 8-54	8-53, 8-54
11-1—11-2.1	11-1—11-2.1
11-61, 11-62	11-61, 11-62
11-103—11-106	11-103—11-106.1
	VOLUME II
15-1—15-2.1	15-1—15-2.1
15-15—15-28	15-15—15-28
15-37, 15-38	15-37, 15-38
15-50.1—15-56	15-51—15-54
15-72.1—15-74	15-73—15-74.4
16-1—16-6.2	16-1—16-6.2

Remove Old Pages	*Insert New Pages*
17-1—17-2.1	17-1—17-2.1
17-97—17-100	17-97—17-100.1
17-123—17-140	17-123—17-136
25-1—25-2.1	25-1—25-2.1
25-33—25-40	25-33—25-40.1
25-65—25-66.1	25-65—25-66.1
25-289—25-300.1	25-289—25-300.1
25-337—25-342.2	25-337—25-342.2
25-359—25-364	25-359—25-364.1
25-380.5—25-380.7	25-380.5—25-380.8
25-389—25-397	25-389—25-401
26-1—26-10	26-1—26-10.1
26-19—26-24	26-19—26-24
26-31—26-36	26-31—26-36
26-61—26-62.3	26-61—26-62.6
T-295, T-296	T-295—T-300
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-112	I-1—I-112

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 8
VOLUMES I AND II
February 2025

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71905, enacted October 17, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
SH-3, SH-4	SH-3, SH-4
3-165—3-166.2	3-165—3-166.4
4-1—4-2.1	4-1—4-2.1
4-147—4-150	4-147—4-150
4-169—4-177	4-169—4-177
5-67—5-70	5-67—5-70.1
11-1—11-2.1	11-1—11-2.1
11-66.7—11-72	11-67—11-69
16-1—16-6	16-1—16-6.2
16-13	16-13—16-15
26-1, 26-2	26-1—26-2.1
26-55—26-62	26-55—26-62.3
T-295	T-295, T-296
SLT:5, SLT:6	SLT:5, SLT:6
I-1—I-113	I-1—I-112

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 7
VOLUMES I AND II
October 2024

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71868, enacted July 2, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-3	SH-3, SH-4
8-1—8-2.1	8-1—8-2.1
8-165, 8-166	8-165—8-166.4
8-273, 8-274	8-273—8-275
	VOLUME II
14-1—14-51	14-1—14-52
15-1—15-2.1	15-1—15-2.1
15-101	15-101—15-109
17-1—17-2.1	17-1—17-2.1
17-147, 17-148	17-147—17-149
25-1—25-2.1	25-1—25-2.1
25-361—25-364	25-361—25-364
25-371—25-378	25-371—25-378
25-395	25-395—25-397
T-293, T-294	T-293—T-295
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-112	I-1—I-113

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 6
VOLUMES I AND II
August 2024

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71824, enacted April 17, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-3	SH-3
2-1—2-2.1	2-1—2-2.1
3-1, 3-2	3-1, 3-2
3-169—3-200	3-169—3-199
4-1—4-2.1	4-1—4-2.1
4-23—4-30	4-23—4-30
4-75—4-80	4-75—4-80.1
4-89—4-92	4-89—4-92.1
4-97—4-116	4-97—4-116.1
4-151—4-176	4-151—4-177
5-1—5-2.1	5-1—5-2.1
5-77, 5-78	5-77—5-81
8-131, 8-132	8-131—8-132.1
	VOLUME II
15-1—15-2.1	15-1—15-2.1
15-72.1, 15-72.2	15-72.1—15-72.4
15-99, 15-100	15-99—15-101
17-1—17-2.1	17-1—17-2.1
17-9—17-12	17-9—17-12.6
25-1—25-2.1	25-1—25-2.1
25-33, 25-34	25-33—25-34.1
25-65—25-66.1	25-65—25-66.1
25-377—25-380.1	25-377—25-380.7
26-1—26-8.1	26-1—26-8.1
26-59, 26-60	26-59—26-60.1
T-289—T-291	T-289—T-294

Remove Old Pages	*Insert New Pages*
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-112	I-1—I-112

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 5
VOLUMES I AND II
February 2024

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71718, enacted July 31, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-3	SH-3
3-11, 3-12	3-11—3-12.1
3-19, 3-20	3-19—3-20.1
4-67—4-68.1	4-67—4-68.1
	VOLUME II
15-1—15-2.1	15-1—15-2.1
15-14.1—15-16	15-15—15-16.1
15-71, 15-72	15-71—15-72.2
15-97, 15-98	15-97—15-100
25-361—25-364	25-361—25-364
T-254.7—T-254.12	T-254.7—T-254.12
T-291	T-291
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-111	I-1—I-112

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 4
VOLUMES I AND II
October 2023

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71702, enacted July 12, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-3	SH-3
4-9—4-52	4-9—4-52
4-117—4-150	4-117—4-150
4-173—4-176	4-173—4-176
11-1, 11-2	11-1—11-2.1
11-259—11-262	11-259—11-264
	VOLUME II
17-2.1	17-2.1
17-147, 17-148	17-147, 17-148
23-9—23-22	23-9—23-22.2
26-55—26-56.2	26-55—26-56.2
T-289, T-290	T-289—T-291
SLT:1—SLT:12	SLT:1—SLT:12
I-1—I-111	I-1—I-111

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 3
VOLUMES I AND II
July 2023

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71653, enacted March 1, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-1, SH-2	SH-1—SH-3
C-22.7—C-24	C-23—C-24.4
3-1—3-8	3-1—3-8
3-169—3-184	3-169—3-184.1
3-195, 3-196	3-195—3-200
5-23, 5-24	5-23, 5-24
11-61—11-66	11-61—11-66.8
	VOLUME II
17-2.1	17-2.1
17-145, 17-146	17-145—17-148
25-115—25-210	25-115—25-191
26-1—26-8	26-1—26-8.1
26-53—26-56	26-53—26-56.2
T-287, T-288	T-287—T-290
SLT:1—SLT:11	SLT:1—SLT:12
I-1—I-110	I-1—I-111

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 2
February 2023

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71575, enacted November 4, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
SH-1, SH-2	SH-1, SH-2
C-21, C-22	C-21—C-22.8
2-1—2-2.1	2-1—2-2.1
2-14.1—2-28	2-15—2-20
3-1, 3-2	3-1—3-2.1
3-169—3-179	3-169—3-196
4-1—4-2.1	4-1—4-2.1
4-9—4-53	4-9—4-52
4-117—4-175	4-117—4-176
5-1, 5-2	5-1—5-2.1
5-75, 5-76	5-75—5-78
11-1—11-4	11-1—11-4
11-15, 11-16	11-15, 11-16
11-83—11-120.6	11-83—11-120.4
11-197, 11-198	11-197, 11-198
11-203—11-206	11-203—11-206.1
11-222.7—11-222.9	11-222.7—11-222.9
11-245, 11-246	11-245—11-246.1
	VOLUME II
15-47, 15-48	15-47—15-48.1
15-67—15-68.1	15-67—15-68.2
17-1—17-2.1	17-1—17-2.1
17-53, 17-54	17-53—17-54.1
17-83—17-86	17-83—17-86.1
17-131, 17-132	17-131—17-132.1
17-139, 17-140	17-139—17-146
18-23, 18-24	18-23—18-24.1

Remove Old Pages	*Insert New Pages*
23-49—23-54	23-49—23-54.1
25-1, 25-2	25-1—25-2.1
25-391	25-391—25-395
1—202	1, 2
T-243—T-254	T-243—T-254.14
T-259, T-260	T-259—T-260.1
T-269, T-270	T-269, T-270
T-277, T-278	T-277—T-278.1
T-285, T-286	T-285—T-288
SLT:1—SLT:11	SLT:1—SLT:11
I-1—I-4	I-1—I-4
I-11—I-16.1	I-11—I-16.1
I-23—I-26	I-23—I-26.1
I-31—I-36	I-31—I-36.1
I-45, I-46	I-45, I-46
I-57—I-64.1	I-57—I-64.1
I-75, I-76	I-75, I-76
I-81—I-84	I-81—I-84
I-97—I-104.1	I-97—I-104.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 1
April 2022

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 71413, enacted November 12, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
ix, x	ix, x
	SH-1, SH-2
C-11, C-12	C-11—C-12.1
C-15, C-16	C-15, C-16
1-1, 1-2	1-1—1-2.1
2-1, 2-2	2-1—2-2.1
2-11—2-14	2-11—2-14.1
3-67—3-72	3-67—3-72.1
3-85—3-88	3-85—3-88
3-161—3-166	3-161—3-166.2
4-1, 4-2	4-1—4-2.1
4-9—4-54	4-9—4-53
4-67, 4-68	4-67—4-68.1
4-123—4-126	4-123—4-126
4-129—4-134	4-129—4-133
4-175	4-175
8-1, 8-2	8-1—8-2.1
8-247—8-258	8-247—8-258.1
8-271, 8-272	8-271—8-274
11-1, 11-2	11-1—11-2.1
11-83—11-120	11-83—11-120.6
11-221, 11-222	11-221—11-222.9
11-261	11-261, 11-262
	VOLUME II
Title Page	Title Page

Remove Old Pages	*Insert New Pages*
iii—v	
ix, x	ix, x
14-25—14-32	14-25—14-32
15-1, 15-2	15-1—15-2.1
15-13, 15-14	15-13—15-14.2
15-49, 15-50	15-49—15-50.1
15-67, 15-68	15-67—15-68.1
15-95, 15-96	15-95—15-98
17-1, 17-2	17-1—17-2.1
17-9, 17-10	17-9—17-10.1
17-83, 17-84	17-83—17-84.1
17-139	17-139, 17-140
20-33, 20-34	20-33—20-34.1
22-7—22-10	22-7—22-10.1
25-1, 25-2	25-1, 25-2
25-13, 25-14	25-13—25-14.1
25-45—25-48	25-45—25-48.2
25-65, 25-66	25-65—25-66.1
25-263—25-266	25-263—25-266.1
25-289—25-292	25-289—25-292.1
25-297—25-300	25-297—25-300.1
25-311—25-314	25-311—25-314
25-337—25-342	25-337—25-342.2
25-379, 25-380	25-379—25-380.1
25-385, 25-386	25-385—25-391
26-31—26-34	26-31—26-34
26-69—26-74	26-69—26-74
T-253—T-259	T-253—T-286
SLT:1—SLT:11	SLT:1—SLT:11
I-3—I-6	I-3—I-6
I-13—I-16	I-13—I-16.1
I-25—I-48	I-25—I-48.1
I-57—I-64	I-57—I-64.1
I-71—I-76	I-71—I-76
I-91, I-92	I-91—I-92.1
I-99—I-104	I-99—I-104.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

O.C. Revision 3
October 2021

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This O.C. Revision 3 is printed to correct pages appearing in the Original Codification, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
26-53—26-56	26-53—26-56

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

O.C. Revision 2
January 2021

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This O.C. Revision 2 is printed to correct pages appearing in the Original Codification, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
26-41—26-44	26-41—26-44

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

O.C. Revision
June 2020

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This O.C. Revision is printed to correct pages appearing in the Original Codification, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
C-37, C-38	C-37—C-38.1

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

Volume I

O.C. Revision
June 2020

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

Looseleaf Supplement

This O.C. Revision is printed to correct pages appearing in the Original Codification, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
C-37, C-38	C-37—C-38.1

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

Volume I

TABLE OF CONTENTS

Volume I

Preface

Supplement History Table

Charter (C-1—C-100)

Title 1 **General Provisions**

Title 2 **Elections**

Title 3 **Administration**

Title 4 **Personnel**

Title 5 **Revenue and Finance**

Title 6 **Contracts for Public Works**

Title 7 **(Reserved)**

Title 8 **Business Taxes, Licenses and Regulations**

Title 9 **Weights and Measures**

Title 10 **Animals**

Title 11 **Health and Safety**

Volume II

Title 12 **Hospitals and Physicians**

Title 13 **(Reserved)**

Title 14 **Alcoholic Beverages**

Title 15 **Public Peace, Morals and Welfare**

Title 16 **Prisoners and Ex-convicts**

Title 17 **Vehicles and Traffic**

Title 18 **Airports and Aviation**

Title 19 **(Reserved)**

Title 20 **Streets, Sidewalks and Bridges**

Title 21 **Harbors and Wharves**

Title 22 **Parks, Recreation and Forestry**

Title 23 **Public Utilities**

Title 24 **Cultural Resources**

Title 25 Buildings and Construction

Title 26 Zoning

Tables

Index

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

Ord. No.	Included/ Omitted	Supp. No.
70991	Included	1
71063	Included	1
71064	Included	1
71072	Included	1
71074	Included	1
71094	Included	1
71095	Included	1
71099	Included	1
71123	Included	1
71125	Included	1
71127	Included	1
71132	Included	1
71133	Omitted	1
71146	Included	1
71154	Included	1
71157	Included	1
71161	Included	1
71174	Included	1
71179	Omitted	1
71180	Omitted	1
71186	Included	1
71187	Omitted	1
71192	Included	1
71193	Included	1
71204	Included	1
71212	Included	1
71219	Included	1
71249	Omitted	1
71259	Included	1
71260	Included	1
71279	Included	1
71284	Included	1
71285	Included	1
71292	Included	1
71324	Included	1
71343	Included	1
71344	Included	1
71357	Included	1

Ord. No.	Included/ Omitted	Supp. No.
71394	Included	1
71395	Included	1
71411	Included	1
71412	Included	1
71413	Included	1
70745	Included	2
70746	Included	2
70914	Included	2
70917	Included	2
71104	Included	2
71111	Included	2
Amd. of 11- 3-2020	Included	2
71332	Included	2
71333	Included	2
71334	Included	2
71429	Included	2
71430	Included	2
71443	Included	2
71478	Included	2
71479	Included	2
71485	Included	2
71487	Included	2
71490	Included	2
71491	Included	2
71502	Included	2
71508	Included	2
71509	Included	2
71510	Included	2
71511	Included	2
71512	Included	2
71513	Included	2
71514	Included	2
71524	Included	2
71531	Included	2
71550	Included	2
71551	Included	2
71552	Included	2
71556	Included	2
71562	Included	2
71574	Included	2
71575	Included	2
71607	Included	3
71608	Included	3
71614	Included	3
71615	Included	3
71617	Included	3
71618	Included	3

Ord. No.	Included/ Omitted	Supp. No.
71619	Included	3
71620	Included	3
71633	Included	3
71644	Included	3
71646	Included	3
71647	Included	3
71653	Included	3
71668	Included	4
71683	Included	4
71685	Included	4
71686	Included	4
71687	Included	4
71688	Included	4
71689	Included	4
71690	Included	4
71691	Included	4
71693	Included	4
71694	Included	4
71702	Included	4
71710	Included	5
71714	Included	5
71717	Included	5
71718	Included	5
71729	Included	6
71730	Included	6
71736	Included	6
71742	Included	6
71746	Included	6
71749	Included	6
71750	Included	6
71758	Included	6
71766	Included	6
71769	Included	6
71807	Included	6
71809	Included	6
71813	Included	6
71818	Included	6
71820	Included	6
71821	Included	6
71824	Included	6
71819	Included	7
71829	Included	7
71834	Included	7
71835	Included	7
71839	Included	7
71840	Included	7
71842	Included	7

Ord. No.	Included/ Omitted	Supp. No.
71868	Included	7
71877	Included	8
71878	Included	8
71880	Included	8
71882	Included	8
71886	Included	8
71887	Included	8
71893	Included	8
71897	Included	8
71900	Included	8
71905	Included	8
71895	Included	9
71896	Included	9
71914	Included	9
71915	Included	9
71916	Included	9
71922	Included	9
71928	Included	9
71934	Included	9
71935	Included	9
71937	Included	9
71940	Included	9
71943	Included	9
71946	Included	9
71948	Included	9
71953	Included	9
71962	Included	9
71963	Included	9
71964	Included	9
71965	Included	9
71966	Included	9
71967	Included	9
71968	Included	9
71969	Included	9
71970	Included	9
71971	Included	9
71972	Included	9
71981	Included	9
71989	Included	9
71990	Included	9
71991	Included	9
71060	Included	10
71844	Included	10
71993	Included	10
71994	Included	10
71997	Included	10
72001	Included	10

Ord. No.	Included/ Omitted	Supp. No.
72002	Included	10
67992	Included	11
72025	Included	11
72027	Included	11
72030	Included	11
72031	Included	11
72034	Included	11
72036	Included	11
72037	Included	11
72041	Included	11
72042	Included	11

CHARTER

Editor's Note: Section and subsection headings contained in this Charter shall not be deemed to govern, limit, modify, or in any manner affect the scope, meaning or intent of the provisions of this Charter.

Articles:

Article I Incorporation

Article II Elections

Article III Recall of Elective Officers

Article IV Board of Aldermen

Article V Initiative

Article VI Referendum

Article VII Mayor

Article VIII City Officers and Employees

Article IX Register

Article X Law Department

Article XI City Marshal

Article XII City Courts

Article XIII Board of Public Service

Article XIV Art Museum and Zoological Park

Article XV Department of Finance

Article XVI Board of Estimate and Apportionment

Article XVII City Bonds

Article XVIII Civil Service

Article XIX Franchises

Article XX Licenses Taxes

Article XXI Eminent Domain

Article XXII Public Works and Improvements

Article XXIII Special Tax Bills

Article XXIV Improvement Bonds And Funds

Article XXV Miscellaneous Provisions

Article XXVI City Parks Protection

Schedule (Transitional Provisions)

Scheme For the Separation and Reorganization of the Governments of the City and County of St. Louis and the Adjustment of Their Relations

Article I

INCORPORATION

City Counselor Ops.: 8513-A, 9228

Section 1 Body corporate; seal; enumeration of powers.

The inhabitants of The City of St. Louis, as its limits now are or may hereafter be, shall be and continue a body corporate by name "The City of St. Louis," and as such shall have perpetual succession, may have a corporate seal, and sue and be sued.

It shall have power:

Constitution:

Art. 6 § 32(a) Amendment of Charter of St. Louis

Art. 6 § 32(b) Revision of Charter of St. Louis

City Counselor Ops.: 10236

Cases:

When the city is sued as a joint tort feasor, joinder of other joint tort feasors can be required. *Kilroy v. City of St. Louis,* 242 Mo. 79, 145 S.W. 769 (1912).

The city derives its power from its charter which must be consistent with the Constitution and state laws. *State v. Armstrong,* 315 Mo. 298, 286 S.W. 705 (1926).

It is presumed that the city considers the public interest when it passes ordinances regulating and licensing occupations. *Ex parte Tarling,* 241 S.W. 929 (1922).

The city's powers to license and regulate occupations under its charter are as broad as those conferred by statute. *Ex parte Tarling,* 241 S.W. 929 (1922).

A city department is not a suable entity, but, in cases brought against a department, the city may be substituted as the party defendant. *Shockley v. City of St. Louis Div. of Corrections,* 2011 U.S. Dist. LEXIS 37448, 2011 WL 1304751 (E.D.Mo. 2011).

McQuillin:

Ch. 3 Creation of Municipal Corporations

(1) *General and special taxes.* To assess, levy and collect taxes for all general and special purposes on all subjects or objects of taxation.

Constitution:

Art. 10 Taxation

Art. 6 § 23 et seq. Local Finances

RSMo:

RSMo 137.485—137.550 (2016) Property taxes

RSMo 92.010 *et seq.* (2016) Generally, taxation in St. Louis and Kansas City and certain other cities

City Counselor Ops.: 8050, 8067, 8242, 9746, 10123, 10508

Cases:

Absent express statutory authority the city's Board of Equalization cannot change the valuation of merchant's property. *State v. Alt,* 224 Mo. 493, 123 S.W. 883 (1909).

City cannot tax shares of stock held by resident in foreign corporation whose property is out of state and not subject to state taxation. *State v. Lesser,* 237 Mo. 310, 141 S.W. 888 (1911).

This subsection is not limited to property taxes but includes persons and objects subject to license taxes. *Automobile Gasoline Co. v. City of St. Louis,* 326 Mo. 435, 32 S.W. 2d 281 (1930).

This subsection permits the city to levy any tax not contrary to other charter constitutional or statutory provisions. *State v. Blaine,* 332 Mo. 582, 58 S.W. 2d 975 (1933).

The statutory requirement that occupations must be named in the charter applies only to license taxes on occupations (selling gasoline) and not excise taxes or privileges (storing gasoline). *State v. Blaine,* 332 Mo. 582, 58 S.W. 2d 975 (1933).

Authority for city to tax for revenue must be specific or clearly implied. *Carter Carburetor Corporation v. City of St. Louis,* 356 Mo. 646, 203 S.W. 2d (1947).

A tax exceeding statutory limits was illegal and punishment could not be imposed for refusal to pay. *Ex parte Tarling,* 241 S.W. 929 (1922). St. Louis has the power to levy and collect, as a license fee, a tax on restaurants to promote conventions and tourism. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

Fact that Federal and State agencies exempt facility from income or other taxes is immaterial to issue of whether in constitutional sense it is used for purely charitable purpose and is therefore exempt from taxation. *Defendant's Townhouse, Inc. v. Kansas City,* 441 S.W. 2d 365 (1969).

McQuillin:

Ch. 44 Taxation

(2) *Classifications for taxation.* To adopt such classifications of the subjects and objects of taxation as may not be contrary to law.

City Counselor Ops.: 8067, 8242, 8748

Cases:

The city is authorized to classify taxable occupations (merchants) for license taxes. *Automobile Gasoline Co. v. City of St. Louis,* 326 Mo. 435, 32 S.W. 2d 281 (1930).

The classification must be reasonable in fact; the validity is determined by general law. *Edmonds v. City of St. Louis,* 348 Mo. 1063, 156 S.W. 2d 619 (1941).

License tax imposed on gas company was a valid subclassification of merchants although there was only one member of the class. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

McQuillin:

44.19—44.22 Uniformity

(3) *Special assessments.* To make special assessments for local improvements.

RSMo:

RSMo Ch. 88 (2016) Public works and special assessments therefor condemnation

Cases:

Special assessments can only be made for local improvements. Memorials are not local improvements and will not support special assessments on adjacent properties. *City of St. Louis v. Pope,* 344 Mo. 479, 126 S.W. 2d 1201 (1938).

McQuillin:

Ch. 38 Special Taxation and Local Assessments

(4) *Contracts.* To contract and be contracted with.

RSMo:

RSMo 432.070—432.080 (2016) Contracts

City Counselor Ops.: 8157A, 8185, 9746, 9987

Cases:

The city is authorized to make leases, and will be bound by their terms. *American Press v. City of St. Louis,* 314 Mo. 288, 284 S.W. 482 (1926).

McQuillin:

Ch. 29 Contracts in General

History:

Submission Ordinance No. 56860

Submission Ordinance Approved November 27, 1974.

Amendment Substance: repeal paragraph (4) of Section 1, relating to contracting powers of the City; enacting a new paragraph (4) of Section 1, relating to the same subject, empowering the City to contract and to contract for services performed by City employees in Classified Services, notwithstanding Article XVIII of the Charter, as amended.

Voter Rejection Date: April 1, 1975.

Submission Ordinance No. 57156

Submission Ordinance Approved March 17, 1976.

Amendment Substance: repealing Section 1, paragraph "(4)," and substituting in lieu thereof a new paragraph (4) to permit the Mayor and Board of Aldermen by ordinance, notwithstanding provisions of Article XVIII, Civil Service, to contract for services performed by employees in the classified service procurement.

Voter Rejection Date: August 3, 1976.

Submission Ordinance No. 58647

Submission Ordinance Approved August 31, 1982.

Amendment Substance: deletion of paragraph 4 and substituting a new paragraph 4 relating to contracting with not for profit hospital management corporation.

Rejected by Voters

(5) *Creation of indebtedness.* To incur debts by borrowing money or otherwise and to give any appropriate evidence thereof.

RSMo:

RSMo Ch. 95 (2016) Financial administration and indebtedness

McQuillin:

39.07—39.16 Power to Borrow, Loan and Give Notes or Issue Bills

39.17—39.37 Power to Incur Indebtedness and Make Expenditures

(6) *Issuance of bonds and notes.* To issue and give, sell, pledge or in any manner dispose of negotiable or non-negotiable, interest-bearing or non-interest-bearing, bonds or notes of the city, upon the credit of the city or solely upon the credit of specific property owned by the city or solely upon the credit of income derived from and property used in connection with any public utility owned or operated by the city or solely upon the credit of the proceeds of special assessments for local improvements or upon any two or more of such credits.

McQuillin:

39.07—39.16 Power to Borrow, Loan and Give Notes or Issue Bills

Ch. 43 Municipal Bonds

(7) *Expenditures.* To expend the money of the city for all lawful purposes.

City Counselor Ops.: 8057, 8060, 8061, 8072, 8073, 8081, 8094, 8106

McQuillin:

39.17—39.37 Power to Incur Indebtedness and Make Expenditures

39.60—39.70 Appropriations

(8) *Acquisition and disposition of property.* To acquire or receive and hold, maintain, improve, sell, lease, mortgage, pledge or otherwise dispose of property, real or personal, and any estate or interest therein within or without the city or state.

City Counselor Ops.: 7898, 7907, 8028, 8096, 8157A, 8184, 8190, 8315, 8393, 8431, 8435, 8500, 8592, 9020, 9678, 9948, 10008, 10015, 10334, 10403, 10508

Cases:

Public funds may be used to build a public hall because it serves a public use. *Halbrueggar v. City of St. Louis,* 302 Mo. 573, 262 S.W. 379 (1924).

The city is authorized to lease premises for sheriff's offices, and will be bound by its terms. *American Press v. City of New York,* 314 Mo. 288, 284 S.W. 482 (1926).

The construction and maintenance of an airport is a municipal purpose within the city's power. *Dysart v. City of St. Louis,* 321 Mo. 514, 11 S.W. 2d 1045 (1928).

It is not unlawful to temporarily lease public property to private citizens pending decision on best manner of public use. *Heger v. City of St. Louis,* 323 Mo. 1031, 20 S.W. 2d 665 (1929). Alteration of park property obtained through condemnation for another public purpose, constructing an expressway, is within city's authority. *Kirkwood v. City of St. Louis,* 351 S.W. 2d 781 (1961).

The city may use park land, obtained by condemnation, for street purposes. *Kirkwood v. City of St. Louis,* 351 S.W. 2d 781 (1961). The acquisition, improvement and development of land by the city outside its corporate limits for an airport is an authorized public purpose. *American Airlines Inc. v. City of St. Louis,* 368 S.W. 2d 161 (1963).

A cooperative agreement between the city and a school district for the erection by the school district of a library building on city owned property was within the city's power. *School District of Kansas City v. Kansas City,* 382 S.W. 2d 688 (1964).

The delegation to a commission of responsibility for management and operation of an airport is not an improper delegation of legislative authority. *Clay v. City of St. Louis,* 495 S.W. 2d 672 (1973). Attempt by city to transfer by warranty deed a public street to a private hospital violated the state constitution. *St. Louis Children's Hosp. v. Conway,* 582 S.W. 2d 687 (1979).

McQuillin:

Ch. 28 Corporate Property

(9) *Eminent domain.* To condemn private property, real or personal, or any easement or use therein for public use within or without the city or state.

RSMo:

RSMo 82.790—82.800 (2016) Condemnation of property outside city

RSMo 82.240 (2016) Parks, cemeteries may be provided for

RSMo 82.450 (2016) Corporation may condemn land for market places

RSMo Ch. 88 (2016) Public works and special assessments therefor—condemnation

City Counselor Ops.: 8028, 8184

Cases:

When city entered land to construct permanent improvements for contemplated public use, acquisition of land through eminent domain by condemnation was inferred. *Langenberg v. City of St. Louis,* 355 Mo. 634, 197 S.W. 2d 621 (1946).

The acquisition, improvement and development of land by the city outside its corporate limits for an airport is authorized as a public purpose. *American Airlines v. City of St. Louis,* 368 S.W. 2d 161 (1963).

The delegation to a commission of responsibility for management and operation of an airport is not an improper

delegation of legislative authority. *Clay v. City of St. Louis,* 495 S.W. 2d 672 (1973).

McQuillin:

Ch. 32 Eminent Domain

(10) *Trusts.* To take and hold property within or without the city or state upon trust, and to administer trusts.

McQuillin:

28.25—28.36 Holding Property as Trustee

(11) *Public utilities.* To acquire, construct, own, operate and maintain or sell, lease, mortgage, pledge or otherwise dispose of public utilities or any estate or interest therein or any other utility of service to the city, its inhabitants, or any part thereof.

RSMo:

RSMo Ch. 91 (2016) Municipally owned utilities

Cases:

When city entered land to construct water mains intended as permanent improvements for contemplated public use, acquisition of land through eminent domain by condemnation was inferred. *Langenberg v. City of St. Louis,* 355 Mo. 634, 197 S.W. 2d 621 (1946).

McQuillin:

Ch. 35 Municipal Ownership of Public Utilities

(12) *Franchises.* To grant franchises for public utilities.

RSMo:

RSMo 82.230 (2016) Regulation of public franchises

McQuillin:

Ch. 34 Franchises

(13) *Regulation of public utilities.* To regulate the construction, maintenance, equipment, operation, service, rates and charges of public utilities and compel, from time to time, reasonable extensions of facilities for such service.

RSMo:

RSMo 71.520 et seq. (2016) Public utilities

City Counselor Ops.: 7715, 8262, 9807

Cases:

This subsection is inoperative in so far as state statute has provided a uniform system of regulation for public utilities. *State v. Public Service Commission*, 270 Mo. 429, 192 S.W. 958 (1917). City authorized to pass safety ordinance for street car drivers that modify but was not inconsistent with state common law. *State v. Reynolds,* 295 Mo. 375, 244 S.W. 929 (1922).

Ordinance prescribing use of bus transfers void as attempted rate regulation of street railway corporations controlled by state law. *Ex parte Packman,* 317 Mo. 732, 296 S.W. 366 (1927).

McQuillin:

4.153—4.158 Legislative Control Over Public Utilities

(14) *Streets, alleys, parks, sewers, etc.* To establish, open, relocate, vacate, alter, widen, extend, grade, improve, repair, construct, reconstruct, maintain, light, sprinkle and clean public highways, streets, boulevards, parkways, sidewalks, alleys, parks, public grounds and squares, wharves, bridges, viaducts, subways, tunnels, sewers and drains, and regulate the use thereof.

RSMo:

RSMo 82.190 (2016) City has exclusive control of public highways City Counselor Ops.: 8063, 8075, 8157A, 8237, 8285, 8324, 8355, 9258, 9336, 9402, 9785, 9818, 9829(IV), 10008, 10015, 10199, 10241, 10258, 10408

Cases:

Only the branch of city government authorized to grant franchise to use city streets may waive forfeiture of franchise. *State v. West End Light and Power Co.,* 246 Mo. 653, 152 S.W. 76 (1912). Empowered with full control of streets, city may require railroad to abolish grade crossings and reunite streets in the interest of public health and safety. *American Tobacco Co. v. Missouri Pac. Ry. Co.,* 247 Mo. 374, 157 S.W. 502 (1912).

City has complete power to open or close streets restricted by constitutional prohibition against taking private property for public use without compensation. *Gorman v. Chicago, B&QR Co.,* 255 Mo. 483, 164 S.W. 509 (1914).

The right of access is the only right appurtenant to private property which is not included within city's power under this subsection. *Gorman v. Chicago, B&QR Co.,* 255 Mo. 483, 164 S.W. 509 (1914). State school board need not comply with city's sewer requirements when state standards established. *Board of Education v. City of St. Louis,* 267 Mo. 356, 184 S.W. 975 (1916).

Ordinance regulating use of streets only valid if of general application. *Ex parte Lerner,* 281 Mo. 18, 218 S.W. 331 (1920).

City authorized to pass safety ordinance for street car drivers that modified but was not inconsistent with state common law. *State v. Reynolds,* 295 Mo. 375, 244 S.W. 929 (1922).

City can require that public carriers meet certification requirements to obtain license to use city streets. *Ex parte Lockhart,* 350 Mo. 1220, 171 S.W. 2d 660 (1943).

There is no inherent right to use streets or highways as place of public business. *Ex parte Lockhart,* 350 Mo. 1220, 171 S.W. 2d 660 (1943). When city authorized to build either a free or toll bridge it is not bound by past decisions regarding fees. *City of St. Louis v. Cavanaugh,* 357 Mo. 204, 207 S.W. 2d 449 (1947).

This subsection does not limit state police power to establish limited access highways. *Handlan-Buck Company v. State Highway Commission,* 315 S.W. 2d 219 (1958).

Under its police power city may enact parking meter

ordinance. *Automobile Club of Missouri v. City of St. Louis,* 334 S.W. 2d 355 (1960).

City may alter park property obtained through condemnation to build public street. *Kirkwood v. City of St. Louis,* 351 S.W. 2d 781 (1961).

Under city's broad and comprehensive power to regulate use of streets rental charge for occupation of street by telegraph poles was valid. *City of St. Louis v. Western Union, Tel. Co.,* 149 U.S. 465, 13 S.C. 990 (1893).

Gas company was subject to city regulation having no vested right to use streets for underground electric wires. *State of Missouri v. Murphy,* 170 U.S. 78 (1898).

The city may use park land, obtained by condemnation, for street purposes. *Kirkwood v. City of St. Louis,* 351 S.W. 781 (1961). Abutter's right of access may not be taken without compensation, but right does not extend to every foot of frontage as against the exercise of police power. *State v. Meier,* 388 S.W. 2d 855 (1965).

Motel owner could not recover for alleged decrease in value of motel due to diversion of traffic in connection with construction of limited access highway abutting motel property. *State v. Meier,* 388 S.W. 2d 855 (1965).

Land obtained through grant restricting use to park purposes may not be used for a public street. *City of St. Louis v. Bedal,* 394 S.W. 2d 391 (1965).

An ordinance authorizing the erection of barricades on streets, enacted for the purpose of facilitating orderly travel, did not violate a statute prohibiting street obstructions. *State ex rel. Schmitz v. City of St. Louis,* 551 S.W. 2d 848 (1977).

Abutter's right to access is subject to reasonable restriction under police power directed towards facilitating travel over the streets. *State ex rel. Schmitz V. City of St. Louis,* 551 S.W. 2d 848 (1977).

McQuillin:

Ch. 30 Streets and Alleys

Ch. 31 Sewers and Drains

25.50—28.54 Public Parks and Squares

(15) *Public buildings and other property.* To acquire, provide for, construct, regulate and maintain and do all things relating to all kinds of public buildings, structures, markets, places, works and improvements.

City Counselor Ops.: 8028, 8157A, 8184, 8435

Cases:

Public funds may be used to build a public hall because it serves a public use. *Halbrueggar v. City of St. Louis,* 302 Mo. 573, 262 S.W. 379 (1924).

An airport is a public structure. *Dysart v. City of St. Louis,* 321 Mo. 526, 11 S.W. 2d 1045 (1928).

The city is liable for the negligence of contractors hired to build public improvements. *Stifel v. City of St. Louis,* 181 S.W. 577 (1916).

(16) *Harbor, wharves and ferries.* To provide and maintain a harbor and wharves and regulate the use thereof, and impose wharfage and other charges therefor; license and regulate ferries and other boats; grant ferry privileges and regulate ferry charges; rent or lease for not exceeding twenty-five years portions of the wharf for any purpose tending to facilitate the trade of the city.

RSMo:

RSMo Ch. 237 (2016) Ferries and wharves

RSMo Ch. 154 (2016) Taxation of boats and vessels

City Counselor Ops.: 8712, 9078, 9617, 9965, 10270, 10278

Cases:

City can demand removal of private property obstructing public wharf. *Hafner Mfg. Co. v. City of St. Louis,* 262 Mo. 621, 172 S.W. 28 (1914).

Protection of private boats moored at public wharf not public duty. *City of St. Louis v. the Maggie P.,* 25 F. 202 (1885).

An agreement between the city and a corporation granting the corporation the inclusive use of a municipal dock for a maximum of twenty years was properly termed a lease agreement as distinguished from a franchise and constituted a valid and binding contract. *St. Louis Terminals v. City of St. Louis,* 535 S.W. 2d 593 (1976).

In granting lease of dock by city, tenant is entitled to all rights ordinarily passed by lease, including possession and profits. *St. Louis Terminal v. City of St. Louis,* 535 S.W. 2d 593 (1976).

The City could not recover damages for lost gambling tax revenue and costs of emergency response to a collision between runaway barges and riverboat casino, absent damage to the City's wharf facilities or other property. *In re American Milling Co.,* 270 F.Supp.2d 1112 (E.D.Mo. 2003).

McQuillin:

19.88 Harbor and Port Regulations

(17) *Watercourses.* To improve watercourses and regulate the use thereof.

City Counselor Ops.: 8080, 9791

(18) *Water rates.* To establish, impose and enforce water rates and rates and charges for public utilities or other service, products or conveniences operated, rendered or furnished by the city.

RSMo:

RSMo Ch. 250 (2016) Sewerage systems and water works

McQuillin:

35.37—35.37K Rates and Service Charges

(19) *Sanitary system.* To provide and maintain a sanitary system.

RSMo:

RSMo Ch. 250 (2016) Sewerage Systems and water works

Cases:

City can require replacement of privies by water closets in

private property. *City of St. Louis v. Nash,* 260 S.W. 985 (1924).

A portion of a city ordinance requiring all dwelling units to have a tub or bath connected to hot and cold water was unconstitutional as applied to a landowner whose buildings were 70 years old and had no sale or loan value. *City of St. Louis v. Brune,* 515 S.W. 2d 471 (1974).

McQuillin:

24.219—24.241 Public Health and Sanitation in General

(20) *Fire department.* To provide and maintain a fire department.

RSMo:

RSMo 71.370—71.510 (2016) Fire protection

Cases:

City may validly amend Charter so as to require compensation of fire department employees to be at least equal to that of police department employees, which is determined by the State. *State ex rel. St. Louis Fire Fighters Association Local No. 73 v. Stemmler,* 479 S.W. 2d 456 (1972).

City charter provision that salaries of firemen shall not be less than those of corresponding ranks of police officers whose pay is fixed by the State General Assembly is not invalid as an improper delegation of legislative responsibility. *State ex rel. St. Louis Fire Fighters Association Local No. 73 v. Stemmler,* 479 S.W. 2d 456 (1972).

McQuillin:

Ch. 45 Fire and Police Departments

(21) *Police and excise departments.* To provide and maintain police and excise departments when permitted by law.

RSMo:

RSMo 84.015 et seq. (2016) Police department in St. Louis

Cases:

Existence of a state police force financed by the municipality is permissible. *State v. Gunn,* 326 S.W. 2d 314 (1959).

McQuillin:

Ch. 45 Fire and Police Departments

(22) *Sewage, ashes and garbage.* To collect and dispose of sewage, offal, ashes, garbage and refuse, or to license and regulate such collection and disposal.

City Counselor Ops.: 8184

Cases:

A tax on junk merchants protects the welfare of citizens and is a valid exercise of the city's police power. *City of St. Louis v. Baskowitz,* 273 Mo. 543, 201 S.W. 870 (1918).

McQuillin:

4.242—24.255 Control, Collection and Disposal of Waste

4.256—24.268 Sewage, Drainage, and Water Supply

(23) *Regulation of business.* To license and regulate all persons, firms, corporations, companies and associations engaged in any business, occupation, calling, profession or trade.

City Counselor Ops.: 8240, 8262, 8378, 9334, 9953, 10286, 10334

Cases:

Ordinance invalid because not applicable to all street vendors. *Ex parte Lerner,* 281 Mo. 18, 218 S.W. 331 (1920).

Ordinance requiring moving companies to register with city before moving property valid. *Wagner v. City of St. Louis,* 284 Mo. 410, 224 S.W. 413 (1920).

Ordinance providing that businesses be closed on Sunday valid exercise of police power. *Komen v. City of St. Louis,* 316 Mo. 9, 289 S.W. 838 (1926).

Ordinance requiring advertisement for sale of goods to state advertiser is dealer in those goods is valid. *City of St. Louis v. Southcombe,* 320 Mo. 865, 8 S.W. 2d 1001 (1928).

Solicitation of funds for charity is an occupation or calling and may be regulated. *Ex parte Williams,* 345 Mo. 1121, 139 S.W. 2d 485 (1940).

If the moving of household goods and office furniture is a business it can be regulated. *Mike Berniger Moving Co. v. O'Brien,* 240 S.W. 481 (1922).

A tax on vending machines was a revenue measure not a regulatory ordinance. *Edmonds v. City of St. Louis,* 348 Mo. 1063, 156 S.W. 2d 619 (1941).

An "earnings tax" is a general revenue measure and not a license tax under the city's police power. *Carter Carburetor Corporation v. City of St. Louis,* 203 S.W. 2d 438 (1947).

Investigation and licensing of gas company, a public service corporation, was within city's authority. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

A grant of authority to license businesses does not carry with it the authority to regulate them. *Anderson v. City of Olivette,* 518 S.W. 2d 34 (1975).

McQuillin:

Ch. 26 Municipal Licenses and Permits

(24) *License taxes.* To impose a license tax upon any business, vocation, pursuit, calling, animal or thing.

RSMo:

RSMo 71.610 *et seq*. (2016) Taxing powers

RSMo 82.310 *et seq*. (2016) License collector in cities of 300,000 inhabitants or more

RSMo 150.350 (2016) Manufacturer taxation and collection in St. Louis city

RSMo 150.090 (2016) Merchant taxation and collection in St. Louis city

City Counselor Ops.: 8067, 10286

Cases:

Court adopted construction that an ordinance imposing a license tax on all merchants was superseded by an ordinance imposing a license tax on all merchants to avoid

invalidity caused by double taxation. *Automobile Gasoline Co. v. City of St. Louis,* 326 Mo. 435, 32 S.W. 2d 281 (1930).

An "earnings tax" is a general revenue measure and not a license tax. *Carter Carburetor Corporation v. City of St. Louis,* 356 Mo. 646, 203 S.W. 2d 438 (1947).

Investigation of gas company, a public service corporation, to determine the amount of license tax was within City's authority. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

McQuillin:

26.32—26.42a Charges, Taxes and Fees

(25) *Nuisances, etc.* To define and prohibit, abate, suppress and prevent or license and regulate all acts, practices, conduct, business, occupations, callings, trades, uses of property and all other things whatsoever detrimental or liable to be detrimental to the health, morals, comfort, safety, convenience or welfare of the inhabitants of the city and all nuisances and causes thereof.

City Counselor Ops.: 8240, 8262, 8357, 8849, 9334, 9916, 9953, 10325

Cases:

City may license plumbers since plumbing related to public health. *Ex parte Smith,* 231 Mo. 111, 132 S.W. 607 (1910).

Regulation of signs and billboards was valid since possible to find that they were injurious to health, etc. *St. Louis Gunning Advertisement Co. v. City of St. Louis,* 235 Mo. 99, 137 S.W. 929 (1911).

Business of junk dealers poses risk of disease and theft warranting regulation. *City of St. Louis v. Baskowitz,* 273 Mo. 543, 201 S.W. 870 (1918).

Ordinance enacted under city's police power must be of general application. *Ex parte Lerner,* 281 Mo. 18, 218 S.W. 331 (1920). City authorized to pass safety ordinance for street car drivers that modified but was not inconsistent with state common law. *State v. Reynolds,* 295 Mo. 375, 2010 S.W. 929 (1922).

Only those callings, etc. which detrimentally affect the public welfare come within the city's police power under this subsection. *State v. McKelvey,* 301 Mo. 1, 256 S.W. 474 (1923).

Zoning ordinance restricting business to certain areas for aesthetic reasons invalid when business not a nuisance. *City of St. Louis v. Evraiff,* 301 Mo. 231, 256 S.W. 489 (1923).

Ordinance providing that businesses be closed on Sunday valid exercise of police power. *Komen v. City of St. Louis,* 316 Mo. 9, 289 S.W. 828 (1926).

Ordinance requiring advertisement for sale of goods to contain fact seller is dealer was designed to catch unlicensed merchants consistent with purposes of this subsection. *City of St. Louis v. Southcombe,* 320 Mo. 865, 8 S.W. 2d 1001 (1928).

Solicitation of funds for charity may be regulated. *Ex parte Williams,* 139 S.W. 2d 485 (1940).

City can regulate construction and materials of buildings, inspect them, prevent their use when necessary, and require alteration for safety. *Kalbfell v. City of St. Louis,* 357 Mo. 987, 211 S.W. 2d 911 (1948).

Conditions of moving industry warranted regulation by the city for the public welfare. *Mike Berniger Moving Co. v. O'Brien,* 240 S.W. 481 (1922).

City can require replacement of privies by water closets in private property. *City of St. Louis v. Nash,* 260 S.W. 985 (1924). School lunchrooms although operated by the state must meet city health standards since there is no statute exempting school lunchrooms from local control. *Bredeck v. Board of Education of St. Louis,* 213 S.W. 2d 889 (1948).

The city has the power to license and regulate real estate brokers. *City of St. Louis v. Green,* 353 S.W. 2d 606 (1962).

McQuillin:

24.58—24.92 Municipal Control and Suppression of Nuisances

(26) *Location of businesses and occupations.* To prescribe limits within which business, occupations and practices liable to be nuisances or detrimental to the health, morals, security or general welfare of the people may lawfully be established, conducted or maintained.

City Counselor Ops.: 8262

Cases:

The power to regulate stone quarries does not include the power to prohibit them. *City of St. Louis v. Atlantic Quarry and Construction Company,* 244 Mo. 479, 148 S.W. 948 (1912).

Ordinance prohibiting street vendors in front of businesses selling same goods invalid because not of general application. *Ex parte Lerner,* 213 S.W. 331 (1920).

Only those businesses which detrimentally affect the public welfare may be excluded from a prescribed district. *State v. McKelvey,* 301 Mo. 1, 256 S.W. 474 (1923).

Zoning ordinance restricting business to certain areas for aesthetic reasons invalid when business not a nuisance. *City of St. Louis v. Evraiff,* 301 Mo. 231, 256 S.W. 489 (1923).

City can regulate construction and materials of buildings, inspect them, prevent their use when necessary, and require alteration for safety. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

(27) *Inspection of articles of consumption or use.* To inspect, test, measure and weigh any article of consumption or use within the city.

Cases:

The city may require milk dealers to obtain permits to

guard against unwholesome milk. *City of St. Louis v. Kellmann,* 295 Mo. 71, 243 S.W. 134 (1922).

McQuillin:

24.396—24.409 Weights, Measures and Fair Trade Dealings

(28) *Weights and measures.* To establish, regulate, license and inspect weights and measures.

RSMo:

RSMo Ch. 413 (2016) Weights and measures

Cases:

Ordinance requiring produce to be sold in containers of certain capacity valid. *Stegmann v. Weeke,* 279 Mo. 140, 214 S.W. 137 (1919).

McQuillin:

24.396—24.409 Weights, Measures and Fair Trade Dealings

(29) *Construction of buildings and maintenance of premises.* To regulate the construction and materials of all buildings and structures, and to inspect all buildings, lands and places as to their condition for health, cleanliness and safety, and, when necessary, prevent the use thereof and require any alterations or changes necessary to make them healthful, clean or safe.

City Counselor Ops.: 9964

Cases:

City can require all buildings over a certain height to comply with fire standards. *City of St. Louis v. Warren Commission and Investment Co.,* 226 Mo. 148, 126 S.W. 166 (1910).

State school board need not comply with city building requirements when state standards are established. *Board of Education v. City of St. Louis,* 267 Mo. 356, 184 S.W. 975 (1916).

City may close but not demolish movie theater that does not comply with fire code. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

City can require replacement of privies by water closets in private property. *City of St. Louis v. Nash,* 260 S.W. 985 (1924).

The city charter does not expressly or by necessary inference empower the city to regulate construction of state buildings on state land in the city. *Paulus v. City of St. Louis,* 446 S.W. 2d 144 (1969).

McQuillin:

24.504—24.562 Building Regulations

(30) *Grade crossings.* To abolish or prevent grade crossings and provide for safe crossings and compel any street, steam, electric railroad or other transportation company or companies affected thereby to pay all or a part of the cost thereof.

City Counselor Ops.: 8240

Cases:

City can require railroad to build a viaduct over its tracks at its expense. *State v. Missouri Pac. Ry. Co.,* 262 Mo. 720, 174 S.W. 73 (1914).

McQuillin:

24.736—24.742 Separated Crossings, Subways, and Elevated Ways

(31) *Children, aged and insane persons.* To provide for the support, maintenance and care of children and sick, aged or insane poor persons and paupers.

City Counselor Ops.: 7828, 8158, 8185

Cases:

City may provide welfare to ablebodied men unable to obtain jobs due to economic conditions. *Jennings v. City of St. Louis,* 332 Mo. 173, 58 S.W. 2d 979 (1933).

McQuillin:

Ch. 47 Charities and Correction

(32) *Public institutions and services.* To provide and maintain charitable, educational, recreative, curative, corrective, detentive or penal institutions, departments, functions, facilities, instrumentalities, conveniences and services.

City Counselor Ops.: 7828, 8158, 8184, 8185, 8366, 8435, 9771, 9919

Cases:

City may provide welfare services to ablebodied men unable to obtain jobs due to economic conditions. *Jennings v. City of St. Louis,* 332 Mo. 173, 58 S.W. 2d 979 (1933).

McQuillin:

Ch. 47 Charities and Correction

(33) *General welfare.* To do all things whatsoever expedient for promoting or maintaining the comfort, education, morals, peace, government, health, welfare, trade, commerce or manufactures of the city or its inhabitants.

RSMo:

RSMo 71.710 (2016) Water supply, cities to protect from contamination

RSMo 71.720 (2016) Sale of milk, cities may regulate and provide for inspection

RSMo 71.780 (2016) Nuisances, injurious to health and welfare, cities empowered to suppress

RSMo 192.290, 192.310 (2016) Rules and regulations of state division of health to supersede local, exceptions

RSMo 196.230 (2016) Food and drugs, state commis-

sioner or local officers may abate violations detrimental to public health

RSMo 322.010—322.080 (2016) Dogs, control of rabies, mayor may issue quarantine orders

City Counselor Ops.: 8050, 8158, 8184, 8185, 8262, 8849, 9334, 9772, 9811, 9909

Cases:

City can require all buildings over a certain height to comply with fire standards. *City of St. Louis v. Warren Commission and Investment Co.,* 226 Mo. 148, 126 S.W. 166 (1910).

Ordinance prohibiting advertisements of cures for sexual problems and diseases invalid exercise of city's power. *City of St. Louis v. King,* 226 Mo. 334, 126 S.W. 495 (1910).

This subsection does not enlarge city's powers further than is necessary to carry out the specific grants of power. *City of St. Louis v. King,* 226 Mo. 334, 126 S.W. 495 (1910).

City may license plumbers since plumbing related to public health. *Ex parte Smith,* 231 Mo. 111, 132 S.W. 607 (1910).

Regulation of signs and billboards was valid since possible to find that they were injurious to health. *St. Louis Gunning Advertisement Co. v. City of St. Louis,* 235 Mo. 99, 137 S.W. 929 (1911).

City may require railroad to abolish grade crossings and reunite streets in the interests of public health and safety. *American Tobacco Co. v. Missouri Pac. Ry. Co.,* 247 Mo. 374, 157 S.W. 502 (1912).

Ordinance punishing disturbance of the peace through violent, offensive, obscene, etc. conduct and noises on private or public property valid. *City of St. Louis v. Stupsky,* 254 Mo. 309, 162 S.W. 155 (1913).

Business of junk dealers poses risk of disease and theft warranting regulation. *City of St. Louis v. Baskowitz,* 273 Mo. 543, 201 S.W. 870 (1918).

Ordinance prohibiting street vendors in front of businesses selling same goods invalid because not of general application. *Ex parte Lerner,* 281 Mo. 18, 218 S.W. 331 (1920).

Ordinance providing that businesses be closed on Sunday valid exercise of police power. *Komen v. City of St. Louis,* 316 Mo. 9, 289 S.W. 838 (1926).

Ordinance requiring advertisement for sale of goods to contain fact seller is dealer was designed to catch unlicensed merchants consistent with the purposes of this subsection. *City of St. Louis v. Southcombe,* 320 Mo. 865, 8 S.W. 2d 1001 (1928).

Power to build an airport inferred from this subsection. *Dysart v. City of St. Louis,* 321 Mo. 514, 11 S.W. 2d 1045 (1928).

City may require compliance with building codes to protect its citizens. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

Conditions of the moving industry warranted regulation by the city for the public welfare. *Mike Berniger Moving Co. v. O'Brien,* 240 S.W. 431 (1922).

City can require replacement of privies by water closets in private property. *City of St. Louis v. Nash,* 260 S.W. 985 (1924).

School lunchrooms, although operated by the state, must meet city health standards since there is no statute exempting school lunchrooms from local control. *Bredeck v. Board of Education of St. Louis,* 213 S.W. 2d 889 (1948).

The city has the power to license and regulate real estate brokers. *City of St. Louis v. Green,* 353 S.W. 2d 606 (1962).

The city charter does not expressly or by necessary inference empower the city to regulate construction of state buildings on state land in the city. *Paulus v. City of St. Louis,* 446 S.W. 2d 144 (1969).

McQuillin:

Ch. 24 Municipal Police Power and Ordinances

(34) *Fines, forfeitures and penalties.* To enforce any ordinance, rule or regulation by means of fines, forfeitures, penalties and imprisonment or by action or proceeding in its own courts or in any other court of competent jurisdiction or by any one or more of such means, and to impose costs as a part thereof.

RSMo:

RSMo 71.220 (2016) City prisoners—labor on public streets, etc. City Counselor Ops.: 8050, 9919

Cases:

City may impose penalty of imprisonment for violation of traffic ordinance. *City of St. Louis v. Von Hoffman,* 312 Mo. 600, 280 S.W. 421 (1926).

City may impose a penalty for violating ordinance requiring filing of tax return. *Barhorst v. City of St. Louis,* 423 S.W. 2d 843 (1967). Due process does not require advance notice that the trial on the substantive offense will be followed by an habitual criminal accusation. *Oyler v. Boles,* 368 U.S. 448, 82 S.Ct. 501, 23 L.Ed. 2d 711 (1962).

Selectivity in enforcement of an habitual criminal statute is not in itself a violation of the Equal Protection Clause of the Fourteenth Amendment. *Oyler v. Boles,* 368 U.S. 448, 82 S.Ct. 501, 23 L.Ed. 2d 711 (1962).

The Fifth Amendment guarantee against double jeopardy embodies collateral estoppel as a constitutional requirement. *Ashe v. Swenson,* 397 U.S. 436, 90 S.Ct. 1189, 25 L.Ed. 2d 469 (1970).

The Fifth Amendment guarantee against double jeopardy is violated when punishment already exacted for an offense is not fully "credited" in imposing a new sentence for the same offense. *North Carolina v. Pearce,* 395 U.S. 711, 89 S.Ct. 2072, 23 L.Ed. 656 (1969).

There is no absolute bar to imposing a more severe sentence on reconviction, but the reasons for a more severe sentence must affirmatively appear in the record and must be based upon objective information concerning identifiable conduct on the part of the defendant occurring after the time of the original sentencing proceeding. *North Carolina v. Pearce,* 395 U.S. 711, 89 S.Ct. 2072, 23 L.Ed. 656 (1969). A second trial in a state court for the identical offense for which a person was tried in a municipal court

constitutes double jeopardy. *Waller v. State of Florida,* 397 U.S. 387, 90 S.Ct. 1184, 25 L.Ed. 2d 435 (1970).

It is a denial of equal protection to limit punishment to payment of a fine for those who are able to pay it but to convert the fine to imprisonment for those who are unable to pay it. *Tate v. Short,* 401 U.S. 395, 91 S.Ct. 668, 28 L.Ed. 2d 130 (1971).

The death penalty in three particular cases held to constitute cruel and unusual punishment in violation of the Eighth and Fourteenth Amendments. *Furman v. Georgia,* 408 U.S. 238, 92 S.Ct. 2726, 33 L.Ed. 2d 346 (1972).

No accused may be deprived of his liberty as the result of any criminal prosecution, whether felony or misdemeanor, in which he was denied the assistance of counsel. *Argersinger v. Hamlin,* 407 U.S. 25, 92 S.Ct. 2006, 32 L.Ed. 2d 530 (1972).

Reliance by Texas on local property taxation for school financing did not violate equal protection clause of the Fourteenth Amendment. *San Antonio Independent School District v. Rodriguez,* 411 U.S. 1, 93 S.Ct. 1278, 36 L.Ed. 2d 16 (1973).

Trying a defendant de novo in circuit court after his acquittal in municipal court constituted double jeopardy in violation of the Fifth Amendment of the U.S. Constitution. *Kansas City v. Bott,* 509 S.W. 2d 42 (1974).

The cruel and unusual punishments clause of the Eighth Amendment does not apply to disciplinary corporal punishment in public schools. *Ingraham v. Wright,* 430 U.S. 651, 97 S.Ct. 1401, 51 L.Ed. 2d 711 (1977).

McQuillin:

Ch. 17 Penalties of Municipal Ordinances

(35) *Incidental powers.* To exercise all powers granted or not prohibited to it by law or which it would be competent for this charter to enumerate.

Constitution:

Article VI § 31 Recognition of City of St. Louis as now existing

Article VI § 32(a) Amendment of Charter of St. Louis

Article VI § 32(b) Revision of Charter of St. Louis

City Counselor Ops.: 8050, 8080, 8158, 8184, 8185, 9811, 9850, 9909

Cases:

The power to regulate vocations is necessary for the city to carry out its governmental functions. *Komen v. City of St. Louis,* 316 Mo. 9, 289 S.W. 838 (1926).

Power to build an airport inferred from this subsection. *Dysart v. City of St. Louis,* 321 Mo. 54, 11 S.W. 2d 1045 (1928).

City may regulate parking on streets by installing parking meters. *Automobile Club of Missouri v. City of St. Louis,* 334 S.W. 2d 355 (1960).

The city may use park land, obtained by condemnation, for street purposes. *Kirkwood v. City of St. Louis,* 351 S.W. 781 (1961). The city charter does not expressly or by necessary inference empower the city to regulate construction of state buildings on state land in the city. *Paulus v. City of St. Louis,* 446 S.W. 2d 144 (1969).

The city in erecting barricades to facilitate orderly vehicle traffic did not exceed its power. *State ex rel. Schmitz v. City of St. Louis,* 551 S.W. 2d 848 (1977).

McQuillin:

10.09—10.12 Scope of Powers

10.13—10.16 Powers of Home-Rule Municipalities

History:

Submission Ordinance No. 66328

Submission Ordinance Approved July 23, 2004.

Amendment Substance: reduces number of aldermen and president chosen by aldermen.

Voter Rejection Date: November 2, 2004.

Section 2 Enumeration not exclusive; scope of grant of power.

The enumeration of particular powers in this charter is not exclusive of others, nor restrictive of general words or phrases granting powers, nor shall a grant or failure to grant power in this article impair a power granted in any other part of this charter; and whether powers, objects or purposes are expressed conjunctively or disjunctively they shall be construed so as to permit the city to exercise freely any one or more such powers as to any one or more such objects for any one or more such purposes.

City Counselor Ops.: 10015, 10408

Cases:

The city powers should be construed broadly to include the power to build a public auditorium with public funds. *Halbrueggar v. City of St. Louis,* 302 Mo. 573, 262 S.W. 379 (1924).

An enumeration of taxable occupations does not impair the city's general power to impose taxes to classify those occupations. *Automobile Gasoline Co. v. City of St. Louis,* 326 Mo. 435, 32 S.W. 2d 281 (1930).

The city may have the right to make subclassifications that contain only one member. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

The city has broad police powers including the power to license and regulate vehicles. *Ex parte Tarling,* 241 S.W. 929 (1922).

McQuillin:

10.09—10.12 Scope of Powers

10.13—10.16 Powers of Home-Rule Municipalities

History:

Submission Ordinance No. 66328

Submission Ordinance Approved July 23, 2004.

Amendment Substance: reduces number of aldermen and president chosen by aldermen.

Voter Rejection Date: November 2, 2004.

Section 3 Wards.

Until December 31, 2021 the city is hereby divided into 28 wards, bounded and numbered as the wards of the city now are; Beginning January 1, 2022, and thereafter, the city shall be divided into 14 wards, which ward boundaries shall be based upon the 2020 decennial census of the United States of America, and each decennial census thereafter, and corrected ward boundaries shall be established by ordinance which shall comprise as nearly as practicable, compact and contiguous territory within straight lines, and contain as nearly as may be the same number of inhabitants; such ordinance shall be adopted before the end of the calendar year next succeeding the year the census is taken, with an effective date of the first day of the subsequent calendar year.

Editor's Note:

Descriptions of ward boundaries can be found in Ch. 2.12 of this Code.

RSMo:

RSMo 82.100 et seq. (2016) Wards

City Counselor Ops.: 9165

Cases:

The prior charter section (repealed by Ordinance 55794 in 1971) providing that aldermanic wards be apportioned according to the number of registered voters was unconstitutional. Representation must be based on population. *Preisler v. Mayor of City of St. Louis,* 303 F.Supp. 1071 (1969).

McQuillin:

7.49 Municipal Subdivisions and Wards

History:

Submission Ordinance No. 55659

Submission Ordinance Approved June 25, 1970.

Amendment Substance: repeals Section 3, enacts new Section 3 relating to fixing Ward Boundaries as ordered by United States District Court so as to establish 28 Wards by ordinance having as near as practicable compact and contiguous territory within straight lines, and contain as nearly as may be the "same number of people according to the latest decennial census of the United States of America."

Voter Rejection Date: November 3, 1970.

Submission Ordinance No. 55794

Submission Ordinance Approved January 29, 1971.

Amendment Substance: repeals Section 3, and enacts a new Section 3 relating to Ward Boundaries, requiring after the 1970 Decennial Census and each such census thereafter Ward boundaries to be established by ordinance with compact contiguous territories within straight lines containing as near as may be the same number of inhabitants, and requiring such ordinances to be adopted within a year after such census.

Voter Adoption Date: April 6, 1971.

Submission Ordinance No. 66328

Submission Ordinance Approved July 23, 2004.

Amendment Substance: reduces number of aldermen and president chosen by aldermen.

Voter Rejection Date: November 2, 2004.

Submission Ordinance No. 69185

Submission Ordinance Approved July 9, 2012.

Amendment Substance: decreases number of aldermen.

Voter Adoption Date: November 6, 2012.

Section 4 Earnings tax.

The City of St. Louis shall have power to assess, levy and collect by ordinance for general revenue purposes an earnings tax not in excess of one per centum on salaries, wages, commissions and other compensation earned by its residents; on salaries, wages, commissions and other compensation earned by non-residents of the city for work done or services performed or rendered in the city; on the net profits of associations, businesses or other activities conducted by residents; on the net profits of associations, business or other activities conducted in the city by non-residents; and on the net profits earned by all corporations as the results of work done or services performed or rendered and businesses or other activities conducted in the city. It shall have power to allow exemptions and deductions from the gross earnings of employees, to impose upon employers the duty of collecting and remitting to it any tax that may be levied upon the earnings of employees and to prescribe penalties for failure to perform such duty.

RSMo:

RSMo 92.105 et seq. (2016) Earnings tax (St. Louis)

Ops. Atty. Gen.:

School districts in St. Louis County must deduct the St. Louis earnings tax from the wages and salaries of their employees who are residents of the city and remit the amount withheld to the St. Louis city collector. No. 148, August 22, 1972.

City Counselor Ops.: 8201, 8369, 8846, 9211

Cases:

Ordinance 43783 of the City of St. Louis, which imposed an earnings tax on residents and nonresidents, held void. *Carter Carburetor Corp. v. City of St. Louis,* 203 S.W. 2d 438 (1947).

An "earnings" tax is a general revenue measure and not a license tax under the city's police power. *Carter Carburetor Corp. v. City of St. Louis,* 203 S.W. 2d 438 (1947).

The city has the power to enact an earnings tax and to make reasonable classifications for tax purposes. *Barhorst v. City of St. Louis,* 423 S.W. 2d 843 (1967).

An earnings tax may be imposed on earned income (salaries, commissions, etc.) and exclude unearned income (rents, dividends, etc.). *Barhorst v. City of St. Louis,* 423 S.W. 2d 843 (1967).

The city may tax the entire earned income of resident individuals while taxing only the income earned in the city by corporations. *Barhorst v. City of St. Louis,* 423 S.W. 2d 843 (1967).

A statute requiring reauthorization of city earnings tax every five years by vote of the people did not constitute an appropriation of funds or a state mandated increased level of activity or service, and did not amend a city charter contrary to Mo.Const. art. VI, §20. *Dujakovich v. Carnahan*, 370 S.W.3d 574 (Mo.banc 2012)(construing RSMo 92.210-.300, applicable to City of St. Louis as well as Kansas City).

McQuillin:

44.193 Income Taxes

History:

Submission Ordinance No. 47117

Submission Ordinance Approved June 28, 1954.

Amendment Substance: enacting a new Section 4, authorizing the City to levy and collect an earnings tax not in excess of ½%.

Voter Adoption Date: September 30, 1954.

Submission Ordinance No. 49502

Submission Ordinance Approved May 8, 1959.

Amendment Substance: amending Section 4 amendment to increase earnings tax authority to 1% from ½%.

Voter Adoption Date: July 14, 1959.

Article II

ELECTIONS

RSMo:

RSMo Ch. 122 (2016) Municipal elections

RSMo 122.650 (2016) Power and authority to regulate municipal elections

City Counselor Ops.: 9882

Constitution:

Article 8 Suffrage and elections

Section 1 When general elections held.

A general municipal election shall be held on the first Tuesday after the first Monday in April, 2005, and every two years thereafter.

City Counselor Ops.: 10153

Cases:

Since a revenue collector of the city of St. Louis is a state officer his election is regulated by state law. *State v. Koeln,* 270 Mo. 174, 192 S.W. 748 (1917).

History:

Submission Ordinance No. 66192

Submission Ordinance Approved February 20, 2004.

Amendment Substance: changing the date of municipal elections.

Voter Adoption Date: August 3, 2004.

Section 2 Mayor and comptroller.

At the general city election in 1917, and every four years thereafter, a mayor and comptroller shall be elected each for a term of four years and until his successor qualifies.

Section 3 Alderman.

At the general city election in 1915 one alderman from each odd-numbered ward shall be elected for a term of two years, and at the same election, and every four years thereafter, one alderman from each even-numbered ward, and a president of the board of aldermen, shall be elected, each for a term of four years; however, the aldermen from each odd-numbered ward, shall be elected at the general city election in 2021 shall be elected for a term of two years; the aldermen from each odd-numbered ward, shall be elected at the general city election in 2023 shall be elected for a term of two years; the aldermen from each odd-numbered ward, shall be elected at the general city election in 2025, and every four years thereafter, shall be elected for a term of four years. At the general city election in 2023, and every four years thereafter, one alderman from each even-numbered ward and a president of the board of aldermen shall be elected, each for a term of four years.

City Counselor Ops.: 9863

Cases:

Aldermen's salaries were governed by the new 1914 Charter which superseded the old charter. *State v. Player,* 280 Mo. 496, 218 S.W. 859 (1920).

Submission Ordinance No. 69185

Submission Ordinance Approved July 9, 2012.

Amendment Substance: decreases number of aldermen.

Voter Adoption Date: November 6, 2012.

Section 4 General ticket required for elective officers.

Every elective city officer, including the president and members of the board of aldermen, shall be elected by a general ticket; provided, that whenever the consti-

tution and laws of the state permit, each alderman shall be elected only by the voters of the ward from which he is elected.

Cases:

If the charter is properly amended the state constitution and statutes are broad enough to permit aldermen to be elected only by members of their wards. *State v. Waechter,* 336 Mo. 509, 80 S.W. 672 (1935).

Section 5 Elections on initiative, referendum or recall—When held.

The board of election commissioners shall designate the day for holding any special election under the initiative, referendum or recall provisions of this charter.

Section 6 Same—Notice to be given.

The board of election commissioners shall cause a notice to be published at least three times in at least two daily newspapers in the city, the first insertion to be at least twenty days prior to the holding of any election under the initiative, referendum or recall provisions of this charter, such notice to state the time and place of holding such election and the general nature of each proposition or ordinance to be voted upon.

Section 7 Conduct of elections.

Except as in this charter otherwise provided, all elections shall be held and proceedings had in relation thereto as may be provided by law or ordinance.

RSMo:

RSMo 82.180 (2016) Providing for nominations and the form of ballots

City Counselor Ops.: 8914, 9707

Cases:

State laws govern the election of municipal officers at general state elections. *State v. Barrett,* 181 S.W. 2d 493 (1944).

Section 8 Expense of elections on initiative, referendum or recall.

All necessary expenses incurred in preparing for and conducting any election under the initiative, referendum or recall provisions of this charter shall be paid as follows: The board of election commissioners shall prepare its estimate of such expenses and submit same to the board of aldermen. The mayor and board of aldermen must then appropriate the amount so estimated. The board of election commissioners shall audit and approve all such expenses so incurred and certify them to the comptroller, who must draw his warrant therefor on the treasurer, who must pay the same. If no appropriation has been made for such payment, the treasurer shall charge the same to any fund not otherwise appropriated or to any fund available therefor, anything in this charter to the contrary notwithstanding.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 9 Municipal elections.

Whenever it may be done in harmony with the state constitution and laws, the board of aldermen shall by ordinance provide for and regulate municipal elections and registration of voters and may provide by ordinance for nonpartisan nominations, preferential voting or proportional representation.

Cases:

State laws govern the election of municipal officers at general state elections. *State v. Barrett,* 352 Mo. 1130, 181 S.W. 2d 493 (1944).

McQuillin:

12.02—12.26 Municipal Elections

Article III

RECALL OF ELECTIVE OFFICERS

Section 1 By whom exercised.

Any elective officer may be recalled by the voters of the city, or if he shall have been elected by the voters of a ward or district, then by the voters of such ward or district, as hereinafter provided.

McQuillin:

12.251—12.251g Removal by Recall

History:

Submission Ordinance No. 61197

Submission Ordinance Approved January 31, 1989.

Amendment Substance: adding provision that ordinances consistent with this article and other applicable laws may be adopted regulating the form of recall petitions and the collection and validity of signatures thereon.

Voter Rejection Date: March 7, 1989.

Submission Ordinance No. 61502

Submission Ordinance Approved July 31, 1989.

Amendment Substance: adding provision that ordinances consistent with this article and other applicable laws may

be adopted regulating the form of recall petitions and the collection and validity of signatures thereon.

Voter Rejection Date: November 8, 1989.

Section 2 Petition—Percentage of voters required.

A petition for such recall shall be signed by registered voters equal in number to twenty percent of all the registered voters of the city at the time of the last preceding regular mayoralty election; provided, that in such number shall be included twenty percent of the registered voters at said time in each of at least two-thirds of the wards of the city; provided further, that if the officer shall have been elected by the voters of a ward or district, the petition need be signed by only twenty percent of all the registered voters therein at the time of said mayoralty election.

History:

Submission Ordinance No. 61197

Submission Ordinance Approved January 31, 1989.

Amendment Substance: amending percentage of registered voters required from twenty to thirty percent.

Voter Rejection Date: March 7, 1989.

Submission Ordinance No. 61502

Submission Ordinance Approved July 31, 1989.

Amendment Substance: confirming percentage of registered voters inquired as twenty percent.

Voter Rejection Date: November 8, 1989.

Section 3 Same—How signatures affixed.

The signatures need not all be appended to one paper, but all papers comprising the petition shall be uniform in character and shall each be verified by affidavit stating that each signature thereto was made in affiant's presence by, as affiant verily believes, the person whose name it purports to be. Each signer shall state, opposite his signature, his residence address. Any person shall be deemed a registered voter whose name is unerased on the registration books.

City Counselor Ops.: 10027

Section 4 Same—Contents.

Each of the papers comprising the petition shall state the name and office of the officer whose recall is sought and ask for his recall before any signature is appended thereto.

City Counselor Ops.: 10421

Section 5 Same—Filing and certification.

All papers comprising the petition shall be assembled by the petitioners and filed with the board of election commissioners as one instrument, and within ten days thereafter said board shall find and certify as to the sufficiency of the petition, stating the number of registered voters signing. If the petition is certified to be insufficiently signed, supplemental papers conforming to the requirements for the originals may be filed within twenty days thereafter, and said board, within ten days after such supplements are filed, shall find and certify as to the sufficiency of the petition, so supplemented. If found still insufficiently signed, no further supplement shall be allowed, but a new petition may be filed.

City Counselor Ops.: 10027

Section 6 Notification to officer.

If such recall petition, with supplements, if any, be found sufficient, a certificate to that effect shall be mailed by said board to the officer, and if he does not resign within ten days after such mailing, said board shall provide for submitting the question of his recall at the first election at which it may lawfully be submitted, not less than thirty nor more than ninety days after such mailing, and if there is no such election, then at a special election to be held within such ninety days if legally possible, otherwise at the earliest day at which said question may be submitted at either a general or special election. Any such election, at any stage thereof, shall at once be discontinued upon the death, resignation or removal of the officer whose recall is in question.

City Counselor Ops.: 10421

Section 7 Form of ballot.

The ballot shall state the proposition, "Shall (name of officer) be removed from the office of (name of office)?" and to the right thereof, in bold type, the words "yes" and "no," one above the other. To vote for the recall of said officer the voter shall strike out the word "no," and to vote against such recall, the word "yes." If the majority of the votes cast thereon at said election shall be in favor of such recall, the office shall be vacant five days thereafter.

Section 8 Propositions to be separately submitted.

No petition shall seek the recall of more than one officer, but several propositions for recall may be separately submitted at the same election on the same ballot.

Section 9 Limitations on use.

No recall petition shall be filed against any officer within the first six months or the last six months of his term nor within six months after a proposition for his recall has been defeated at an election.

History:

Submission Ordinance No. 61197

Submission Ordinance Approved January 31, 1989.

Amendment Substance: adding provisions on form of recall petition and requiring that no recall petition shall be filed against any officer later than one hundred twenty days after the earliest dated signature thereon.

Voter Rejection Date: March 7, 1989.

Submission Ordinance No. 61502

Submission Ordinance Approved July 31, 1989.

Amendment Substance: adding provisions on form of recall petition and requiring that no recall petition shall be filed against any officer later than one hundred twenty days after the earliest dated signature thereon.

Voter Rejection Date: November 8, 1989.

Submission Ordinance No. 66974

Amendment Substance: limit time for submitting recall petition.

Voter Rejection Date: April 4, 2006.

Article IV

BOARD OF ALDERMEN

City Counselor Ops.: 9724, 10290, 10291

Section 1 Composition.

The legislative power of the City of St. Louis shall, subject to the limitations of this charter, be vested in a board of aldermen consisting of a president, and twenty-eight members before the first day of the annual general session of the board of aldermen in April, 2023, and of a president, elected as such by general ticket from the city at large, and fourteen (14) members thereafter, one from each ward, to be elected only by the qualified voters of the ward he or she is a candidate to represent, and to be known as alderman or alderwoman from the ward from which elected. Provided, that aldermen heretofore elected shall remain in office until the end of the terms for which they were, respectively, elected, and provided further that in case of a vacancy, the alderman or alderwoman elected to fill such a vacancy shall be chosen by the qualified voters of the ward from which he or she is elected.

Submission Ordinance No. 69185

Submission Ordinance Approved July 9, 2012.

Amendment Substance: decreases number of aldermen.

Voter Adoption Date: November 6, 2012.

City Counselor Ops.: 9843, 9857

Cases:

The people retain the right to legislate through the initiative procedure. *Pitman v. Drabelle,* 267 Mo. 78, 183 S.W. 1055 (1916); *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926).

The state constitution and statutes are broad enough to permit aldermen to be elected only by members of their wards. *State v. Waechter,* 336 Mo. 509, 80 S.W. 2d 672 (1935).

The establishment of a commission to administer an ordinance prohibiting solicitation of charitable funds was not an invalid delegation of legislative power. *Ex parte Williams,* 345 Mo. 1121, 139 S.W. 2d 485 (1940).

The board of aldermen do not have the authority to pass an irrevocable ordinance setting bridge tolls. *City of St. Louis v. Cavanaugh,* 357 Mo. 204, 207 S.W. 2d 449 (1948).

McQuillin:

Ch. 13 Meetings and Proceedings of Council or Governing Legislative Body

History:

Submission Ordinance No. 42060

Submission Ordinance Approved April 14, 1941.

Amendment Substance: repealing Section 1, and enacting a new Section 1, relating to the vesting of legislative power in a Board of Aldermen, electing its members and filling vacancies.

Voter Adoption Date: September 16, 1941.

Submission Ordinance No. 69185

Submission Ordinance Approved July 9, 2012.

Amendment Substance: decreases number of aldermen.

Voter Adoption Date: November 6, 2012.

Section 2 Qualifications and salary.

No person shall become an alderman except a voter at least twenty-five years of age, and who shall have been next before his or her election five years a citizen of the United States, three years a resident of the city, two years an assessed taxpayer of the city, and one year a resident of the ward from which elected, nor who shall have been convicted of malfeasance in office, bribery, or other corrupt practice or crime; and if any alderman shall be so convicted or shall at any time not be a resident of such ward, the alderman shall thereby forfeit the office. However, in the event that an alderman ceases to reside within the ward to which he or she was elected due solely to redistricting of the wards pursuant to Article I, Section 3 of this Charter, said alderman shall not immediately forfeit office, but shall

remain in office with all attendant powers and duties during the remainder of said alderman's then-existing term of office, and until qualification of the alderman of the redistricted ward elected at the next succeeding general city election. The salary of each alderman shall be as established by ordinance.

City Counselor Ops.: 9471, 9843

Cases:

Aldermen's salaries were governed by the new 1914 Charter which superseded the old charter. *State v. Player,* 218 S.W. 859, 280 Mo. 496 (1920).

For the purposes of this section an alderman's residence is where his home (domicile) is located. *State v. Mueller,* 388 S.W. 2d 53 (1965). The residence requirement is mandatory. *State v. Mueller,* 388 S.W. 2d 53 (1965).

A requirement that a candidate for alderman be a resident of the city for three years prior to the election is a valid residency requirement. *State ex. rel. Campbell v. Svetanics,* 548 S.W. 2d 293 (1977).

A one-year residency requirement for city aldermen was reasonable and valid. *Brandenberg v. McClellan,* 427 F.Supp. 943 (1977).

History:

Submission Ordinance No. 35188

Submission Ordinance Approved July 6, 1926.

Amendment Substance: amending Section 2 relating to qualifications and salary of members of the Board of Aldermen, by striking the salary established as $1,800 per year and substituting the higher salary of $3,000.

Voter Rejection Date: November 2, 1926.

Submission Ordinance No. 44822

Submission Ordinance Approved February 1, 1949.

Amendment Substance: repealing Section 2, and enacting a new Section 2, relating to same subject providing for the qualifications of Aldermen, changing the salary from $1,800 per year to $3,000 per year.

Voter Adoption Date: April 5, 1949.

Submission Ordinance No. 57094

Submission Ordinance Approved December 5, 1975.

Amendment Substance: changing (amending) Section 2 requirement that members of the Board of Aldermen must be at least 25 years of age to a requirement that members of the Board of Aldermen must be at least 22 years of age.

Voter Rejection Date: August 3, 1976.

Submission Ordinance No. 69185

Submission Ordinance Approved July 9, 2012.

Amendment Substance: decreases number of aldermen.

Voter Adoption Date: November 6, 2012.

Section 3 President.

The president of the board of aldermen shall preside at all meetings and have the qualifications and forfeit his office for the causes provided with regard to the mayor. His salary shall be five thousand dollars per annum.

City Counselor Ops.: 9843, 10421

Cases:

The salary of the office of president belongs to the person who holds that office. *State v. Nolte,* 180 S.W. 2d 740, 352 Mo. 1069 (1944).

History:

Submission Ordinance No. 35188

Submission Ordinance Approved July 6, 1926.

Amendment Substance: amend Section 3, relating to the duties and salary of the President of the Board of Aldermen, by striking the salary of the President established as $3,000 per year, and substituting therefor a salary of $5,000 per year.

Voter Rejection Date: November 2, 1926.

Submission Ordinance No. 010822

Submission Ordinance Approved February 1, 1949.

Amendment Substance: repeals Section 3, and enacts a new Section 3 relating to the same subject matter of the duties of the president of the Board of Aldermen but changes the salary from $3,000 to $5,000 per year.

Voter Adoption Date: April 5, 1949.

Section 4 Absence from meetings.

Whenever a member of said board other than the president is absent from a meeting he shall forfeit ten dollars ($10.00) of his salary unless his absence is excused on motion, stating the cause thereof, and adopted by a majority of the members present, provided, that forfeitures by one member shall not exceed eight hundred dollars ($800.00) in any one year. No forfeiture imposed because of absence shall be remitted.

City Counselor Ops.: 8113, 8220, 9843, 10180, 10181

History:

Submission Ordinance No. 43505

Submission Ordinance Approved March 11, 1946.

Amendment Substance: amending Section 4, to permit excused absences without forfeiture of $10 salary, upon motion adopted by majority of members present.

Voter Adoption Date: August 6, 1946.

Section 5 Vacancies.

(a) When a vacancy occurs in the office of ward alderman, one hundred and eighty (180) days or more prior to a city general election, such vacancy shall be filled through special election by the qualifying voters of the ward represented by the vacating alderman. The individual elected shall serve for the remainder of the

unexpired term or until the next general city election, whichever shall occur first, at which time such office shall again be filled according to law. Where such special ward election is required for an abbreviated term it shall be held no sooner than seventy-five (75) days nor later than ninety (90) days after the occurrence of the vacancy and there shall be no primary election preliminary thereto. In such case the board of election commissioners shall accept and process the names of candidates representing the established political parties, as such parties are defined in Section 120.140-2. Missouri Revised Statutes, 1969 [RSMo 120.140(2) (1969)—now repealed], or as amended, which are certified by the respective city central committees of the aforesaid parties, as their chosen respective candidates to stand for election to fill the vacancy. Persons desiring such party certification shall conform to all the requirements of the revised code of the City of St. Louis required for primary nominations, except that the time limitation contained in the aforesaid revised code of the City of St. Louis shall not be observed. The certification herein provided shall be delivered to the board of election commissioners by the aforesaid several city central committees and by said board shall be receipted, not less than thirty (30) days before the date of the special election. Persons desiring to stand for election as nonpartisan candidates shall file nomination petitions signed in the aggregate for each candidate by ten percent (10%) of the qualified voters in the respective ward who voted at the next preceding mayoral general election. The primary and general elections to fill aldermanic vacancies otherwise than herein provided, shall be subject to all other existing city and state laws pertaining to the provisions for and conduct of elections in the City of St. Louis.

(b) All provisions of the city charter and ordinances and rules thereunder, or parts thereof, inconsistent with this amendment are hereby repealed.

City Counselor Ops.: 9462, 9720, 9843, 9863

Cases:

When the president of the board of aldermen becomes mayor, the office of president is temporarily vacant and the provisions of this section for filling a vacancy do not apply. *State v. Barrett,* 180 S.W. 2d 730, 352 Mo. 1076 (1944).

History:

Submission Ordinance No. 52897

Submission Ordinance Approved December 10, 1964.

Amendment Substance: repealing Section 5 and enacting a new Section 5, relating to filling vacancies of unexpired terms of members of the Board of Aldermen requiring filling by election at next City general election to be held not less than 60 days after occurrence of the vacancy, empowering Board of Aldermen, by majority vote, to appoint a person of same political party to serve until a person to fill vacancy is elected; and upon the Board's failure to call election, the Mayor by proclamation to call special election within specified time limits.

Voter Adoption Date: April 6, 1965.

Submission Ordinance No. 56672

Submission Ordinance Approved February 22, 1974.

Amendment Substance: repeal of Section 5, as amended, and enact new Section 5, changing the time requiring election to fill vacancies in the Board of Aldermen from 60 days to 180 days before a next City general election, establishing nomination requirements of candidates to fill vacancies; omitting the Mayor's function for calling special election upon failure of the Board of Aldermen; and specifying the application of Missouri election statutes as applicable.

Voter Adoption Date: August 6, 1974.

Section 6 Vice-president, clerk and other officers and employees.

Said board shall choose from its membership a vice-president to act in case of the absence, disability or failure to act of the president, shall choose a clerk, and may select any other officers and employees.

City Counselor Ops.: 9843, 10224

Cases:

When the vice-president fills the office of president which was left vacant, the vice-president becomes president. *State v. Nolte,* 180 S.W. 2d 740, 352 Mo. 1069 (1944).

Section 7 Board to be judge of qualifications of members; quorum.

Said board shall be the judge of the qualifications of its members, except of its president, and a majority of all its members shall constitute a quorum, but a smaller number may adjourn from day to day and may compel the attendance of absentees in such manner and under such penalties as the board may provide.

City Counselor Ops.: 9843, 9857

Cases:

The circuit court is not precluded from determining the qualifications of a member of the board of aldermen by writ of quo warranto. *State v. Harris,* 363 S.W. 2d 580 (1962).

McQuillin:

13.27—13.36 Quorum and Number of Votes Required to Act

Section 8 Rules of procedure; punitive powers; attendance of witnesses; journal; publication of proceedings.

Said board may determine the rules of its proceedings, subject to this charter; arrest and punish by fine or imprisonment, or both, any member or other person guilty of disorderly or contemptuous behavior in its presence; and with the concurrence of two-thirds of all its members, expel a member for cause, after notice and upon a hearing. It shall have power, and may delegate it to any committee, to subpoena witnesses and order the production of books and papers relating to any subject within its jurisdiction; to call upon its own officer or the city marshal to execute its process; and to arrest and punish by fine or imprisonment, or both, any person refusing to obey such subpoena or order. No fine for any one offense under this section shall exceed three hundred dollars nor shall any imprisonment for any one offense exceed ten days; but each day's continuance [of] any refusal as aforesaid shall be a separate offense. Its presiding officer or the chairman of any committee may administer oaths to witnesses. It shall keep a journal of its proceedings, and the yeas and nays on any question shall at the desire of any member present be entered thereon. The proceedings of each meeting of said board shall be published within five days in the paper or papers doing the city publishing.

City Counselor Ops.: 8768, 9230, 9843, 10122

Cases:

The board of aldermen or a committee thereof has the power to subpoena the president of a public service corporation. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

Editor's Note:

The word "[of]" has been inserted for clarification.

McQuillin:

13.37—13.52 Proceedings

Section 9 General and special sessions.

One session of said board shall be held annually, beginning on the third Tuesday of April, and the mayor may by three days' proclamation convene it in special session. All sessions shall be public and in the city hall, subject to change of place in case of emergency.

City Counselor Ops.: 9857

History:

Submission Ordinance No. 35001

Submission Ordinance Approved April 22, 1926.

Amendment Substance: amending Section 9 relating to general and special sessions of the Board of Aldermen to change the general meetings from "one annually beginning on the third Tuesday of April" to "biennially beginning on the third Tuesday of April of the year (1927), and of each alternate year thereafter."

Voter Rejection Date: August 3, 1926.

Section 10 Enacting style of ordinances.

The style of [every] ordinance shall be: "Be it ordained by the city of St. Louis as follows:"

City Counselor Ops.: 8034

Cases:

Requirements as to form of ordinances are directory and not mandatory. *St. Louis Terminals v. City of St. Louis,* 535 S.W. 2d 593 (1976).

Requirement of ordaining clause is directory and not mandatory, and omission will not invalidate ordinance. *St. Louis Terminals v. City of St. Louis,* 535 S.W. 2d 593 (1976).

McQuillin:

Ch. 16 Enactment of Ordinances

Editor's Note:

The word "[every]" has been inserted because it was evidently intended.

Section 11 Ordinances to be passed by bill; limitation on amendment.

No ordinance shall be passed except by bill and no bill shall be so amended in its passage as to change its original purpose.

City Counselor Ops.: 8034, 9986, 10130, 10145

Section 12 Revival, amendment and re-enactment of ordinances.

No ordinance shall be revived or re-enacted except by bill setting it forth in full, nor amended except by bill setting forth the ordinance or section amended in full, as amended.

City Counselor Ops.: 8034, 9967, 9986, 10310

Section 13 Bills to contain single subject; exception.

No bill, except a general appropriation bill which shall only embrace matters on account of which moneys are appropriated, shall contain more than one subject, which shall be clearly expressed in its title.

City Counselor Ops.: 8034, 9498, 9733, 9838, 9967, 9986, 10045, 10145

Cases:

The title to an amendatory act that indicates the subject matter of the act amended and the nature and purposes of

the amendments is sufficient. *City of St. Louis v. United Rys. Co. of St. Louis,* 263 Mo. 387, 174 S.W. 78 (1914).

An ordinance that provides for the vacation of a small portion of a street and the widening of the street covered one subject. *City of St. Louis v. Senter Commission Co.,* 336 Mo. 1209, 84 S.W. 2d 133 (1935).

Any doubt about the validity of the title is usually resolved in favor of validity. *Ploch v. City of St. Louis,* 345 Mo. 1069, 138 S.W. 2d 1020 (1940).

The requirements as to titles for ordinances have no effect on legislative proposals for charter amendments. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

This section is prospective in character and not retroactive. *Driscoll v. Nelson,* 185 Mo. App. 300, 170 S.W. 377 (1914).

The ordinance is only invalidated as to the part that was not clearly expressed in the title. *City of St. Louis v. Breuer,* 223 S.W. 108 (1920).

The title of an ordinance specifying code provisions that were being revised and that the same subject matter was being covered was valid. *City of St. Louis v. Bouckaert,* 185 S.W. 2d 886 (1945).

The defense of invalidity of an ordinance under this section is deemed waived unless it is raised at the first opportunity. *City of St. Louis v. Langeneckert,* 210 S.W. 2d 736 (1948).

Neither stating nor failing to state the location of public improvements in the title violates this section. *Kirkwood v. City of St. Louis,* 351 S.W. 2d 781 (1961).

When the title does not descend into particulars the failure to state details included in the ordinance is not fatal. *508 Chestnut, Inc. v. City of St. Louis,* 389 S.W. 2d 823 (1965).

The purpose of this section is to provide for an honest title and prevent deception. *508 Chestnut, Inc. v. City of St. Louis,* 389 S.W. 2d 823 (1965).

Seemingly separate subjects may be separate facets of a prime subject. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

A special employer tax was held invalid as it was imposed by a bill which violated this section. *ACI Plastics, Inc. v. City of St. Louis,* 724 S.W. 2d 513 (1987).

Section 14 How committees discharged.

The board of aldermen at any meeting held thirty days or more after any bill shall have been referred to a committee, shall, on motion of any member, determine by the yeas and nays entered on the journal, whether such committee shall be discharged from further consideration thereof.

City Counselor Ops.: 8034

Section 15 Amendments to be engrossed.

All amendments adopted shall be incorporated with the bill by engrossment under the supervision of a committee which shall report in writing such engrossment not later than the first meeting of said board held more than three days after the order to engross.

City Counselor Ops.: 8034

Section 16 Adoption of ordinances.

Every bill shall be read on three different days in open session before its adoption, and no bill shall become an ordinance unless a majority of all the members vote in favor of its adoption and the presiding officer signs the same in open session.

City Counselor Ops.: 8034, 9732

Cases:

The term "all the members" as used in the Charter refers to the full authorized membership of the Board of Aldermen, not the actual membership of the Board at the time a vote is taken. *Braddy v. Zych,* 702 S.W. 2d 491 (Mo. App. 1985).

An abstention is not a favorable vote. *Braddy v. Zych,* 702 S.W. 2d 491 (Mo. App. 1985).

Section 17 Approval or disapproval of ordinances by mayor; reconsideration by board.

Each bill shall be presented to the mayor immediately after its adoption, but shall not be acted upon by him (except it be an emergency measure) within ten days after its adoption. He shall within twenty days after its presentation to him return it with his approval or disapproval endorsed thereon to the board of aldermen, or, if said board shall have finally adjourned, to the register. Failure so to return any bill within said time shall constitute approval thereof by the mayor. If the mayor approves the bill, or fails to return it as and when above provided, it shall become an ordinance, subject to the referendum provisions of this charter. If he returns it to the register, with his disapproval endorsed thereon, after said board shall have finally adjourned, but within said twenty days, it shall not become an ordinance. If he returns it to said board, with his disapproval endorsed thereon, within said twenty days and before said board shall have finally adjourned, said board shall reconsider it. If, on such reconsideration, two-thirds of all the members vote to pass the bill, the presiding officer shall certify that fact thereon over his signature and thereupon the bill shall become an ordinance, subject to the referendum provisions of this charter; otherwise it shall not become an ordinance. If a bill contains several items of appropriation, the mayor may disapprove one or more items while approving the others, and the items approved

shall become an ordinance in like manner as a bill approved, and the items disapproved shall be proceeded with in like manner as a bill disapproved.

RSMo:

RSMo 82.200 (2016) Attestation of ordinances—evidence, when

City Counselor Ops.: 7672, 8034, 9000, 9761

Cases:

A returned bill becomes law even though the date of its approval by the mayor is erroneous or absent. *Ex parte Corvey,* 220 Mo. App. 602, 287 S.W. 879 (1926).

The term "all the members" as used in the Charter refers to the full authorized membership of the Board of Aldermen, not the actual membership of the Board at the time a vote is taken. *Braddy v. Zych,* 702 S.W. 2d 491 (Mo. App. 1985).

Where the Board of Aldermen was in session, the Mayor's returning the endorsed copy of a board bill with his approval to the City Register did not fulfill the requirements of the Charter to enact an ordinance. The Mayor, therefore, did not relinquish control of the bill and had the authority to disapprove the bill within the twenty day time period. *State ex rel. Clark v. Gray,* 931 S.W.2d 484 (Mo.App.E.D. 1996).

Section 18 How vote determined; entry in journal.

In all cases under the two next preceding sections the votes shall be determined by yeas and nays and the names of the members voting for and against the bill shall be entered on the journal.

City Counselor Ops.: 8034

Section 19 Effective date of ordinances.

No ordinance, unless it be an emergency measure, shall take effect until thirty days after its approval by the mayor or thirty days after adoption over his veto.

City Counselor Ops.: 8034, 9454

Section 20 Emergency ordinance defined.

An emergency measure is any ordinance necessary for the immediate preservation of the public peace, health or safety, or providing for public work or improvements of any kind or repairs thereof, or establishing a benefit or taxing district or a sewer district, or a joint sewer district, and declared to be an emergency measure; any ordinance calling or providing for any election or vote by or submission to the people; any ordinance making an appropriation for the payment of principal or interest of the public debt, or for current expenses of the city government; any general appropriation ordinance; or any ordinance fixing any tax rate; but no ordinance granting, enlarging or affecting any franchise or amending or repealing any ordinance adopted by the people under the initiative shall be an emergency measure.

City Counselor Ops.: 8034, 9731, 9732

Cases:

Whether or not a legislative measure is an emergency measure is ultimately a court question. *State v. City of St. Louis,* 319 Mo. 497, 5 S.W. 2d 1080 (1928).

Designation of an ordinance as an emergency measure cannot be partial; if the ordinance is properly an emergency measure only as to part of the ordinance, the entire ordinance will be considered an emergency measure. The existence of an emergency generally is a judicial question, but an ordinance expressly providing for public works or improvements comes within the definition of emergency in the Charter. *Murry v. City of St. Louis,* 947 S.W.2d 74 (Mo.App.E.D. 1997).

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: amending Section 20 relating to emergency measure ordinance.

Voter Adoption Date: April 5, 1927.

Section 21 Ordinances to be numbered and published.

Every ordinance shall be immediately sent to the register, and by him numbered, filed and preserved in his office. Every ordinance shall be published within ten days after its approval by the mayor or adoption over his veto in the paper or papers doing the city publishing.

RSMo:

RSMo 82.120 (2016) Redistricting ordinance to be published

City Counselor Ops.: 8034

Cases:

If only one paper is doing the city publication, publication in more than that one paper is not required. *State v. City of St. Louis,* 5 S.W. 2d 1080, 319 Mo. 497 (1928).

Section 22 Revision of ordinances.

There shall be a revision of the general ordinances every five years.

Section 23 Legislative and administrative powers of board.

The board of aldermen shall have power by ordinance not inconsistent with this chapter [article] to exercise all the powers of the city and provide all means

necessary or proper therefor; also to do all things needful within or without the city or state to protect the rights of the city.

City Counselor Ops.: 8271, 8393, 8400A, 9020, 9330, 9811, 9909, 10130, 10227, 10278, 10446

Cases:

The people retain the right to legislate through the initiative procedure. *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926).

Section 24 Fines and imprisonment.

No fine shall exceed five hundred dollars except for violations of City ordinances regarding unpermitted demolitions, vacant property, or non-owner-occupied deteriorated property or regarding the preservation and protection of environmental conditions in the City for the prevention of harm to the health, safety and comfort of its residents or harm to private or public property such as the unauthorized dumping of waste or debris on private or public property, prohibited refuse, waste tire disposal.

City Counselor Ops.: 8405

Cases:

It is a denial of equal protection to limit punishment to payment of a fine for those who are able to pay it but to convert the fine to imprisonment for those who are unable to pay it. *Tate v. Short,* 401 U.S. 395, 91 S. Ct. 668, 28 L.Ed. 2d 130 (1971).

St. Louis must provide indigent defendants an opportunity to pay fines in reasonable installments. *Hendrix v. Lark,* 482 S.W. 2d 427 (1972).

A person who is unable to pay fines despite a good faith effort cannot be incarcerated. *Hendrix v. Lark,* 482 S.W. 2d 427 (1972).

An indigent defendant may not be incarcerated for nonpayment of fine. *Spencer v. Basinger,* 562 S.W. 2d 350 (1978). Hearing should be held to determine defendant's ability to pay before he may be confined for failure to pay fines. *Spencer v. Basinger,* 562 S.W. 2d 350 (1978).

McQuillin:

Ch. 17 Penalties of Municipal Ordinances

History:

Submission Ordinance No. 55732

Submission Ordinance Approved December 30, 1970.

Amendment Substance: repeal Section 24 relating to fines and imprisonment, and enact a new Section 24, changing the rate at which fines are worked off from $3 to $15 per day or if no labor performed a rate of $5 per day of imprisonment.

Voter Rejection Date: April 6, 1971.

Submission Ordinance No. 63315

Submission Ordinance Approved December 7, 1994.

Amendment Substance: amending Section 24 relating to fines and punishment to increase the maximum fine to one thousand dollars.

Voter Rejection Date: April 4, 1995.

Submission Ordinance No. 63914

Submission Ordinance Approved November 26, 1996.

Amendment Substance: repeal Section 24 relating to fines and enact a new Section 24, changing the amount which the fine shall not exceed from $500 to $1,000.

Voter Rejection Date: April 1, 1997.

Submission Ordinance No. 64298

Submission Ordinance Approved March 20, 1998.

Amendment Substance: repeal Section 24 relating to fines and enact a new Section 24, changing the amount which the fine shall not exceed from $500 to $1,000.

Voter Rejection Date: August 4, 1998.

Submission Ordinance No. 65579

Amendment Substance: to increase fines to $1,000.00.

Voter Rejection Date: November 5, 2002.

Submission Ordinance No. 66276

Submission Ordinance Approved July 23, 2004.

Amendment Substance: change maximum fine from $500.00 to $1,000.00.

Voter Rejection Date: November 2, 2004.

Submission Ordinance No. 71478

Submission Ordinance Approved March 30, 2022.

Amendment Substance: change maximum fine from $500.00 to $1,000.00.

Voter Approval Date: August 2, 2022.

Submission Ordinance 71896 Approved August 13, 2024.

Voter Approval Date: November 5, 2024.

Section 25 Expenditures to be pursuant to ordinance; recommendations required.

Except as otherwise expressly provided in this charter, no money shall be expended except in consequence of appropriations made by ordinance, and no improvement involving any expenditure of money shall be ordered except by ordinance. No ordinance making, changing or transferring an appropriation or contemplating or involving the payment of any money shall be ad-

opted unless the board of estimate and apportionment shall have recommended or joined in recommending the same.

City Counselor Ops.: 7655, 7660, 7903, 7919, 7928, 8010, 8037, 8046, 8071, 8622, 9450, 10063, 10132, 10224, 10301, 10429

Cases:

The city may appropriate bonds instead of money for public improvements. *Jennings v. Kinsey,* 308 Mo. 265, 271 S.W. 786 (1925).

Ordinance fixing salaries of class of employees was not an appropriation ordinance. *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926); *State v. City of St. Louis,* 356 Mo. 820, 204 S.W. 2d 234 (1947).

An ordinance passed for the purposes of condemnation does not necessarily involve the payment of money. *City of St. Louis v. Breuer,* 223 S.W. 108 (1920).

Establishment of Convention and Tourism Bureau was not inherently inconsistent with Charter requirements relating to appropriations. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

Lease agreement executed by city officials without authorization by city did not constitute a legal obligation of the city. *Vigran v. Poelker,* 433 F.Supp. 168 (1977).

Board of estimate and apportionment did not have discretion to delete or modify certain items included in circuit court's budget estimates without first obtaining relief from Judicial Finance Commission. *State ex rel. Twenty Second Jud. Circuit v. Jones,* 823 S.W. 2d 471 (Mo.banc 1992).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 26 Limitations on powers of board.

The board of aldermen shall not have power to relieve or exempt any person from the payment of any tax or from any burden imposed by law; nor to authorize the compromise of any disputed contractual demand, or any allowance on account thereof not provided for in the contract, except on recommendation of the board of estimate and apportionment; nor to authorize the payment of any damages claimed for alleged injuries to persons or property, except upon recommendation by the city counselor; or to appropriate any money for charitable purposes, except such as shall be subject to the administration or supervision of the city; nor to sell, lease or otherwise dispose of the waterworks; nor to sell any of the city's real estate except by ordinance adopted by a vote of two-thirds of all the members; nor to acquire real estate by private purchase except by ordinance recommended by the board of public service.

City Counselor Ops.: 7629, 8188, 8190, 8393, 8517, 8592, 8637, 9280, 9373, 9797, 9823, 9948

Cases:

The term "all the members" as used in the Charter refers to the full authorized membership of the Board of Aldermen, not the actual membership of the Board at the time a vote is taken. *Braddy v. Zych,* 702 S.W. 2d 491 (Mo. App. 1985).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 27 Reserved.

Section 28 Definitions.

As used in Sections 28 to 34, the following terms mean:

1. "Applicant", an individual who applies to serve on the People's Commission.
2. "City", the City of St. Louis.
3. "Commission", the People's Commission.
4. "Controlling Person", an officer, director, manager, principal, shareholder, or member with at least 10% ownership of a legal entity.
5. "Day", a calendar day, except that if the final day of a period within which an act is to be performed is a Saturday, Sunday, or holiday in which City offices are closed, the period is extended to the next day that is not a Saturday, Sunday, or holiday in which City offices are closed.
6. "Decennial Census", the national decennial census taken under the direction of the United States Congress at the beginning of each decade.
7. "First Degree Relative", a parent, spouse, or child.
8. "Committee", the Oversight Committee.
9. "Parent", the natural or adopted parents or someone who acted as a parent in lieu of a natural or adopted parent.
10. "Spouse", a licensed marriage spouse or registered domestic partner.
11. "Child or children", the natural, foster, and adopted child or children, and stepchild or stepchildren.

12. Notwithstanding any other provision of law to the contrary, the term Alderperson shall include an Alderman or Alderwoman.

13. Notwithstanding any other provision of law to the contrary, the term Board of Alderpersons shall include the Board of Aldermen.

Voter Adoption Date: April 5, 2022.

Section 29 The People's Commission.

A. The Commission shall consist of nine (9) members who represent the demographic make-up of the City of St. Louis. The members shall be chosen to ensure the Commission reflects the City's diversity, including, but not limited to, racial, ethnic, sexuality, ability, age, area of residence, and gender diversity. However, it is not intended that formulas or specific ratios be applied for this purpose.

B. Members of the Commission shall:

1. Be registered voters in the City of St. Louis for at least three consecutive years immediately preceding the date of appointment to the Commission;

2. Have voted in at least one municipal election in the five years immediately preceding the date of appointment to the Commission; and

3. Be free of conflicts of interest. For the purposes of this section, a conflict of interest arises if, in the two years immediately preceding the date of appointment to the Commission, an applicant, or a First Degree Relative of the applicant has:

a. Been appointed to, elected to, or been a candidate for state, county, or City office;

b. Served as an officer, employee, or paid consultant of a political party or of the campaign committee of a candidate for elective state, county, federal, or City office;

c. Been a registered state lobbyist, or local lobbyist who represented clients with interests in front of City government;

d. Been a paid employee of the City of St. Louis; a person performing paid services under professional or political contract to the City, to the Board of Alderpersons, or to any member of the Board of Alderpersons; any Controlling Person of any such enterprise providing a professional or political contracted service to the City, to the Board of Alderpersons, or to any member of the Board of Alderpersons.

C. Applicants shall complete an application form provided by the Clerk of the Board of Alderpersons. Such form shall be provided in paper form at the Board of Alderpersons, City Hall Room 230 and online on the website for the Board of Alderpersons. The form shall request such information as determined by the Clerk, but shall include the following:

1. Name of Applicant;
2. Birthdate;
3. Current address of residence, including ward;
4. Length of residence at current address;
5. Addresses for past five years if other than current address;
6. Race;
7. Ethnicity;
8. Sexual Orientation;
9. Gender Identity;
10. A checkbox for an applicant to self-identify as an individual with a disability;
11. Business or occupation engaged in during the preceding five years, including address of and date of service with each business or occupation;
12. Branch, date, and rank at discharge of military service;
13. Educational background, including high school and college credits, the name of each educational institution attended and any degree or diploma received;
14. Description of and date of service in civic or community organizations;
15. Memberships in professional, technical, or other organizations;
16. A statement of qualifications not longer than 300 words expressing the reasons why the Applicant believes he or she is qualified to serve as a member of the Commission; and
17. An acknowledgement, signed by the Applicant, that he or she is a registered voter in the City and has voted in at least one municipal election in the preceding five years.

D. The Applicant shall be required to sign the application form under penalty of perjury.

E. The application period shall be advertised in both the City Journal and on the Board of Alderpersons' website. The application period shall open one month following receipt of the Decennial Census information. The application period shall remain open for at least 30 days but not longer than 45 days or until at least fifty (50) applications are received including at least one (1) applicant from each ward existing at the time of the Decennial Census, whichever is longer. If, after forty-five (45) calendar days, the applicant pool does not include one (1) applicant from each ward or does not

include at least fifty (50) applications, the Alderperson(s) in the wards without any applicants shall nominate at least one Applicant from their ward. All nominees shall complete the application as provided by this Section. Nominees are not guaranteed to be selected for the Commission. Notwithstanding any other provision of law to the contrary, for the purposes of redistricting based on the 2020 Decennial Census information, the application period shall open no later than ten (10) days after this Section goes into effect.

F. There is hereby established an Oversight Committee that shall be responsible for selecting the first four (4) members of the Commission.

G. No later than thirty (30) days after the first meeting of the Board of Alderpersons following the receipt of the Decennial Census information, the Board of Alderpersons shall select an Oversight Committee of five (5) individuals consisting of one (1) representative from the Planning and Urban Design Agency, one (1) representative from the Comptroller's Office and three (3) retired judges. If the Board of Alderpersons fails to select an Oversight Committee, responsibility for selection of a Committee shall pass to the Office of the Comptroller. Notwithstanding any other provision of law to the contrary, for the purposes of redistricting based on the 2020 Decennial Census information, the Board of Alderpersons shall meet and select an Oversight Committee no later than thirty (30) days after this Section goes into effect.

H. To be eligible to serve on the Oversight Committee as a retired judge, the judge must:

1. Have served a minimum of five (5) years as a judge in one of the following jurisdictions: 22nd Judicial Circuit of Missouri; 21st Judicial Circuit of Missouri; The Missouri Court of Appeals, Eastern District; or The Missouri Supreme Court;

2. Reside in the City of St. Louis or St. Louis County; and

3. Not currently be employed by the City.

I. Within ten (10) days after the effective date of this Section, the Clerk of the Board of Alderperson shall post online a request for letters of interest to serve on the Oversight Committee be sent to the Clerk. The Clerk shall also send the information for service on the Oversight Committee to the Missouri Bar Association and request they post the information online.

J. The Planning and Urban Design Agency shall nominate one (1) current or former staff member with the appropriate expertise from the Planning and Urban Design Agency to serve on the Oversight Committee.

K. The Comptroller shall nominate one (1) staff member with appropriate expertise from the Comptroller's Office to serve on the Oversight Committee.

L. Within one (1) day of the closing of the application period, the Clerk of the Board of Alderpersons shall transfer all applications for membership on the Commission to the Oversight Committee. The Oversight Committee shall have seven (7) days to review all applications and remove any application that does not meet the requirements of this Section. The Oversight Committee shall provide a list of all Applicants to the Board of Alderpersons. Each Alderperson may strike one (1) Applicant from the list and such Applicant will be removed from consideration for membership on the Commission. In order to strike an Applicant, an Alderperson must provide their strike, in writing, to the Clerk of the Board of Alderpersons within fourteen (14) days of the Board of Alderpersons receiving the list of Applicants from the Oversight Committee. If the Clerk does not receive a strike within fourteen (14) days, the Alderperson forfeits their strike. The names of Applicants who are stricken and the Alderperson who struck each Applicant shall be published online within five (5) days of the end of the fourteen (14) day period.

M. At the conclusion of the fourteen (14) days, the Clerk of the Board of Alderpersons shall transmit the list of Applicants with stricken Applicants removed, if any Alderperson utilized their strike, to the Oversight Committee. The Oversight Committee shall draw at random four (4) Applicants from the remaining Applicant pool to serve as members of the Commission. This shall be completed no later than three (3) months following the opening of the application period.

N. The four (4) members selected by the Oversight Committee shall be sworn in within five (5) days of their selection and convene within ten (10) days of their selection in order to select the five (5) remaining members of the Commission. These five (5) members shall be selected from the remaining Applicant pool as described in Subsection M.

1. The four (4) members shall review the remaining applications and select the remaining members by a three (3) vote majority.

2. If the result of a vote for a potential member of the Commission results in a tie, the Oversight Committee shall be empowered to break any such tie.

3. The four (4) members shall select the remaining members of the Commission with the goal of balancing the Commission's diversity across areas of residence within the City, age, gender, race, sexual orientation, ability, and ethnicity in a manner that reflects the demographics of the City.

O. The Oversight Committee shall establish criteria for diversity of the Commission that ensures adequate representation of traditionally underrepresented groups as described in Subsection A. The four (4) members of the Commission selected by the Oversight Committee shall utilize these criteria when selecting the remaining members of the Commission.

P. The Oversight Committee shall swear in the newly selected five (5) members of the Commission. Within ten (10) days of the new members being sworn in, the Commission shall convene a meeting to select two (2) alternates from the remaining Applicant pool to serve in the event a member of the Commission is unable to complete their term of service. Alternates shall be selected by a simple majority of the Commission. At this same meeting, the Commission shall select one (1) of its members to serve as the chair and one (1) to serve as the vice chair. The chair and vice chair shall remain voting members of the Commission.

1. The chair shall convene meetings of the Commission pursuant to the requirements of this Section.

Q. Within five (5) days of being sworn in, members of the Commission shall file a written declaration, on a form to be provided by the Clerk of the Board of Alderpersons, that they will not seek election to a City public office or accept appointment to any City public office in the election immediately following the conclusion of their service on the Commission. Alternates shall sign the declaration if they are required to serve on the Commission.

R. In addition to the written declaration, members of the Commission shall file a Missouri Ethics Commission Personal Financial Disclosure with the St. Louis City Board of Election Commissioners. Alternates shall file a Missouri Ethics Commission Personal Financial Disclosure if they are required to serve on the Commission.

S. Members of the Commission and the Oversight Committee shall not be compensated for their service but are eligible for reimbursement of reasonable and necessary expenses incurred in connection with the duties performed pursuant to this Article.

T. Notwithstanding any other provision of law, no employer shall discharge, threaten to discharge, intimidate, coerce, or retaliate against any employee by reason of such employee's membership on the Commission or attendance or scheduled attendance at any meeting of the Commission.

Voter Adoption Date: April 5, 2022.

Section 30 Redistricting.

A. The Commission shall be responsible for the redistricting of the City of St. Louis at least once every ten (10) years. Such redistricting shall be completed no later than December 31 of the year following the completion of the Decennial Census. Notwithstanding any other provision of law, redistricting following the receipt of the 2020 Decennial Census information shall be completed no later than May 31, 2022. If this section becomes effective less than three months prior to March 30, 2022, the deadline for completing redistricting based on the 2020 Decennial Census information shall be August 31, 2022.

B. The Commission shall meet for the first time no later than three (3) months after its appointment and no later than three (3) months before the deadline to complete redistricting. The Commission shall establish the boundaries of the wards for the City of St. Louis pursuant to the following criteria as set forth in the following order of priority:

1. Wards shall be established in a manner so as to comply with all requirements of the United States Constitution and applicable federal and state laws, including, but not limited to, the Voting Rights Act of 1965 (as amended). Notwithstanding any other provision of this Article, districts shall not be drawn with the intent or result of denying or abridging the equal opportunity of racial or language minorities to participate in the political process or diminishing their ability to elect representatives of their choice, whether by themselves or by voting in concert with other persons.

2. Wards shall be composed of contiguous territory. Areas that meet only at the point of adjoining corners are not contiguous.

3. Wards shall be designed to minimize the division of and maintain the geographic integrity of any local neighborhood or local community of interest, to the extent possible without violating the requirements

in paragraphs 1 and 2 of this Subsection. For the purposes of this Section, a community of interest shall be defined as a contiguous population with shared race, ethnicity, and/or language identity, and shared common social and economic interests that should be included within a single ward for the purposes of effective and fair representation. Communities of interest shall not include relationships with political parties, incumbents, or political candidates.

4. To the extent consistent with the preceding requirements, wards shall be designed to be compact in form. In general, compact wards are those which are square, rectangular, or hexagonal in shape to the extent permitted by natural or political boundaries.

5. To the extent consistent with the preceding requirements, wards shall be designed using geographically identifiable boundaries, such as natural boundaries, street lines, or city boundary lines.

C. Five (5) members of the Commission shall constitute a quorum. Five (5) or more affirmative votes shall be required for any official action, including approval of a final plan establishing the boundaries of any ward.

D. The Commission shall convene and hold as many meetings as necessary to draw a preliminary map. These meetings shall include public hearings where public comments shall be received by the Commission. At minimum, there shall be three (3) public hearings before the Commission votes on a preliminary plan. They shall be held in the north, south, and central areas of the City of St. Louis.

E. Following the Commission's vote approving the preliminary plan, there shall be at least three (3) public hearings, held in the north, south, and central areas of the City, on different dates to receive public comments on the preliminary plan. The Commission shall also display the approved preliminary plan for written public comment in a manner designed to achieve the widest public access reasonably possible. Written public comment shall be taken for at least one (1) month from the date of public display of the approved preliminary plan.

F. After public comment is received and public hearings are completed on the preliminary plan, but before formulating the final plan, the Commission shall present the preliminary plan to a committee of the whole of the Board of Alderpersons. By a vote of a majority of members present, the Board of Alderpersons may make objections or recommendations to the preliminary plan. The Commission may accept or reject any objections or recommendations made by the Board of Alderpersons.

G. The Commission shall vote on a proposed final map and subsequently hold three (3) public hearings, in the north, south, and central areas of the City. The Commission shall provide the public with seven (7) days to submit written comments after the completion of the three (3) public hearings. The Commission shall be finished with all hearings and adopt a final map no later than December 31 of the year following the release of the Decennial Census information, except for 2020 where the time shall be extended to May 31, 2022. Notwithstanding any other provision of law to the contrary, if this Section becomes effective less than three (3) moths [months] prior to the March 30, 2022 deadline for completing redistricting based on the 2020 Decennial Census information the deadline shall be August 31, 2022. Notwithstanding any other provision of law to the contrary, if a state of emergency is declared that includes the City of St. Louis, the Board of Alderpersons may extend the deadline in this Subsection.

H. Upon adoption of a final map, the Commission shall certify the map to the Board of Alderpersons. The Board of Alderpersons shall be prohibited from making any changes to the Commission's map. The Commission's map shall be adopted as an ordinance and codified in the Revised Code of the City of St. Louis. In conjunction with certifying the final map, the Commission shall issue a report explaining the basis for its decisions.

I. The Commission may vote, by simple majority, to present any disputes to the Oversight Committee at a public hearing. The Oversight Committee shall offer its resolution to the conflict within 48 hours of the public hearing.

J. Failure to certify a final ward map to the Board of Alderpersons by December 31 of the year following the release of the Decennial Census information, except for 2020 where the time shall be extended to May 31, 2022, shall result in the Oversight Committee hearing the disputes in a public hearing and mandating appropriate resolutions, including a final ward map. In the event of failure by the Commission to finalize a ward map, the final ward map shall be drawn and approved by the oversight committee and certified to the Board of Alderpersons no later than 30 days after the Commission's deadline to certify a map to the

Board of Alderpersons. If this Section becomes effective less than three (3) months prior to the March 30, 2022 deadline for completing redistricting based on the 2020 Federal Decennial Census Information the deadline shall be August 31, 2022.

K. The Commission and Oversight Committee shall:

1. Comply with all state and City requirements for open meetings and records, including, but not limited to Chapter 610, RSMo; and

2. Ensure that all documents, records, and data utilized are made available to the public in an immediate and widespread manner.

L. Members of the Commission and the Oversight Committee shall be prohibited from initiating or receiving any communications from the public regarding redistricting matters other than at a public hearing or through official written comment. Nothing in this Subsection prohibits communication between Commission members, Oversight Committee members, legal counsel, and consultants retained to assist with redistricting. All such communication shall comply with open meeting and open record requirements, including such requirements in Chapter 610, RSMo.

M. An individual from the Research Department of the Planning and Urban Design Agency shall be assigned to the Commission to provide assistance, guidance, consultation, GIS mapping, and other resources needed by the Commission to fulfill the requirements of this Section.

N. An individual from the City Counselor's Office shall be assigned to the Commission to provide assistance, legal guidance, consultation, and other resources needed by the Commission to fulfill the requirements of this Section.

O. The Commission is authorized to hire consultants, provided that the compensation of such persons be limited to the period in which the Commission is actively engaged in the redistricting process. The Commission shall establish criteria for the hiring and removal of these individuals, communication protocols, and a code of conduct including conflicts of interest, consistent with this Section.

P. The Commission is authorized to utilize redistricting software.

Q. Notwithstanding any other provision of law to the contrary, the map adopted pursuant to this section shall be the final ward map and shall supersede any other map adopted pursuant to any other provision of this Charter or the Revised Code of the City of St. Louis.

Voter Adoption Date: April 5, 2022.

Section 31 Conflicts of Interest.

A. A member of the Board of Alderpersons or employee of the Board of Alderpersons may not use his or her official position or office, or take or fail to take any action, or influence others to take or fail to take any action, in a manner which he or she knows, or has reason to believe, may result in a personal or financial benefit for himself or herself; anyone related to the Alderperson or employee in the fourth degree of consanguinity or affinity; or a nongovernmental civic group, union, social, charitable, or religious organization of which the Alderperson or employee (or his or her spouse or registered domestic partner) is an officer, director, or board member, or which he or she holds any other position on the organization's administrative or governing body.

B. An Alderperson or employee serving as a member of a board, commission, or any other entity as a representative of the City shall not have a conflict of interest when the business of that entity is before the City. An Alderperson or employee serving as a member of a board, commission, or any other entity not as a representative of the City but as a private citizen, even if the board, commission, or entity seeks out an Alderperson or employee to serve on such board, commission, or entity because of their position within the City, shall have a conflict of interest when matters touching upon the business of the board, commission, or any other entity comes before the City.

C. An Alderperson or employee has a conflict of interest with respect to any labor contract to which he or she, or his or her spouse, may be a party.

D. An Alderperson or employee must declare, on a form provided by the Clerk of the Board of Alderpersons, conflict of interest under this Section. The Alderperson or employee must complete and deliver such form to the Legal Counsel to the Board of Alderpersons within ninety-six (96) hours of the introduction of any ordinance, resolution, order, or other matter in the Board of Alderpersons in which the Alderperson or employee has a potential conflict.

E. To the extent an Alderperson or employee believes that despite the existence of the circumstances described in this Section, they do not have a conflict of

interest, they may request an opinion from the Legal Counsel of the Board of Alderpersons to determine whether there is a conflict. Such opinions shall be made publicly available on the Board of Alderpersons' website within one day of the Legal Counsel issuing the opinion.

F. Any Alderperson with a conflict of interest on any matter shall abstain from voting but shall be counted present for the purposes of a quorum.

G. Any individual may file a complaint against any Alderperson or employee for failing to comply with this Section. A complaint shall be filed with the Legal Counsel of the Board of Alderpersons on a form provided by the Clerk of the Board of Alderpersons.

H. The Legal Counsel to the Board of Alderpersons has the power to seek a fee in the Municipal Court of the City of St. Louis of no less than $500 dollars and no greater than $5000 dollars per incident against any Alderperson or employee the Legal Counsel finds to be in violation of this Section.

I. The Legal Counsel to the Board of Alderpersons is hereby authorized to establish procedures to implement this Section.

Voter Adoption Date: April 5, 2022.

Section 32 Outside Employment.

A. An Alderperson or an employee of the Board of Alderpersons shall not accept employment or enter into a contract that:

1. Interferes with the discharge of their public duty; or

2. Creates a conflict of interest, as described in Section 31 of this Article, that would materially impair their ability to serve the City.

B. An Alderperson or an employee of the Board of Alderpersons shall not accept employment or enter into a contract with any party or beneficiary relating to:

1. A pending or existing City contract if the Alderperson or employee participated in the negotiation, development, awarding, or management of that contract; or

2. Any other matter before the Board of Alderpersons.

C. An Alderperson or employee shall not solicit or accept any money or other thing of value in return for advice or assistance on matters concerning the operation or business of City government or any matter before the Board of Alderpersons.

D. An Alderperson or employee shall not represent any person or organization for a fee or any other thing of value before the Mayor, Board of Alderpersons, member of the Board of Alderpersons, any department of the City, or any City board, agency, commission, or committee of a City board, agency or commission.

E. An Alderperson or employee shall notify the Legal Counsel of the Board of Alderpersons before accepting outside employment or entering into a contract for providing services. Such notification shall be submitted annually on the last Monday of January of each year that the outside employment or contract for services exists. The notification shall be in writing on a form provided by the Clerk of the Board of Alderpersons

F. Notifications described in Subsection E shall be made available for public inspection and copying within five (5) days of receipt by the Legal Counsel to the Board of Alderpersons. Notifications shall also be made publicly available on the Board of Alderpersons website. If the Legal Counsel determines the notification needs curing, the Legal Counsel shall allow the Alderperson or employee 72 hours to amend and return the form prior to public inspection.

G. Any individual may file a complaint against any Alderperson or employee for failing to comply with this Section. A complaint shall be filed with the Legal Counsel to the Board of Alderpersons on a form provided by the Clerk of the Board of Alderpersons.

H. The Legal Counsel to the Board of Alderpersons has the power to seek a fee in the Municipal Court of the City of St. Louis of no less than $500 dollars and no greater than $5000 dollars against any member or employee the Legal Counsel to the Board of Alderpersons finds to be in violation of this Section.

I. The Legal Counsel to the Board of Alderpersons is hereby authorized to establish procedures to implement this Section.

Voter Adoption Date: April 5, 2022.

Section 33 Prohibited Activities

A. After November 12, 2021, no Alderperson or employee of the Board of Alderpersons shall act, serve, or register as a lobbyist to directly or indirectly influence a decision of the City or any department or agency thereof until one year after termination of their service or employment.

B. After November 12, 2021, no Alderperson or employee of the Board of Alderpersons, until the expiration of five calendar years after the conclusion of the

aldermanic session in which the Alderperson or employee last served, shall attempt to directly or indirectly influence any action in front of any department or agency of St. Louis City, or any court, on behalf of any other person in connection with a particular matter:

1. In which the City of St. Louis is a party or has a direct and substantial interest;

2. In which the Alderperson or employee participated during their term of service or employment at the Board of Alderpersons; and

3. Which involved a specific party or specific parties at the time of such participation.

C. After November 12, 2021, no Alderperson or employee of the Board of Alderpersons, until the expiration of five calendar years after the conclusion of the aldermanic session in which the Alderperson or employee last served, shall attempt to directly or indirectly influence any action in front of any department or agency of St. Louis City, or any court, on behalf of any other person in connection with a particular matter:

1. In which the City of St. Louis is a party or has a direct and substantial interest;

2. In which the Alderperson or employee knows or reasonably should know was actually pending under his or her official responsibility as such officer or employee within a period of one (1) year before the termination of his or her service or employment with the Board of Alderpersons; and

3. Which involved a specific party or specific parties at the time it was so pending.

D. Any individual may file a complaint against any Alderperson or employee for failing to comply with this Section. A complaint shall be filed with the Legal Counsel of the Board of Alderpersons on a form provided by the Clerk to the Board of Alderpersons.

E. The Legal Counsel to the Board of Alderpersons has the power to seek a fee in the Municipal Court of the City of St. Louis of no less than $500 dollars and no greater than $5000 dollars against any member or employee the Legal Counsel to the Board of Alderpersons finds to be in violation of this Section.

F. The Legal Counsel to the Board of Alderpersons is hereby authorized to establish procedures to implement this Section.

Voter Adoption Date: April 5, 2022.

Section 34 Competitive Elections.

A. The purpose of this section is to protect voters' rights and prevent the Board of Alderpersons from overturning the will of the people pertaining to voter-enacted reforms that create competitive elections and elect candidates with broad support.

B. Notwithstanding any other provision of law to the contrary, in the event the Board of Alderpersons approve an ordinance changing the method of voting for municipal offices to another method of voting, the ordinance shall be submitted by the Board of Alderpersons to a public vote. The new method for voting for municipal offices shall only be in effect if a majority of the voters voting on the ordinance approve of it.

Voter Adoption Date: April 5, 2022.

Article V

INITIATIVE

Cases:

The people retain the right to legislate through the initiative procedure. *Pitman v. Drabelle,* 267 Mo. 78, 183 S.W. 1055 (1916); *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926).

The people's power to amend the charter does not preclude amendments by the board of aldermen. *State v. City of St. Louis,* 319 Mo. 497, 5 S.W. 2d 1080 (1928).

The restriction that the board of public service must recommend a public improvement applies to proposals under the initiative as well as ordinances proposed by the board of aldermen. *Baum v. City of St. Louis,* 343 Mo. 738, 123 S.W. 2d 48 (1938).

When initiative proposal for charter amendment had signatures representing 10% but less than 15% of the registered voters at the last mayoralty election, the board of aldermen were required to place it on the ballot at the next general election even though no general election was scheduled between 30 and 90 days after certification of rejection by the board of aldermen. *State ex rel. Blackwell v. Travers,* 600 S.W. 2d 110 (1980).

The initiative process under a city charter cannot be utilized to appropriate funds, due to the limitations of Mo.Const. art. III, §51. *City of Kansas City v. Chastain*, 420 S.W.3d 550 (Mo.banc 2014).

Section 1 Use authorized.

The people shall have power, at their option, to propose ordinances, including ordinances proposing amendments to this charter, and to adopt the same at the polls, with the same effect as if adopted by the board of aldermen and approved by the mayor, such power being known as the initiative. It shall be exercised as hereinafter provided, subject to the provisions of this charter.

City Counselor Ops.: 7865, 10027

Cases:

The people retain the right to initiate and adopt ordinances. *State v. Miller,* 285 S.W. 504, 315 Mo. 41 (1926).

The people's power to amend the charter does not preclude amendments by the board of aldermen. *State v. City of St. Louis,* 319 Mo. 497, 5 S.W. 2d 1080 (1928).

Initiative and referendum are essentially different. Initiative is the proposal of legislation by the public. It has no need for time limits and warrants a lesser initial support to justify submission to the voters. Referendum is the overturning of legislation enacted by the representatives of the people. It requires strict time limits so is not to unduly delay the effectiveness of duly enacted legislation and warrants a greater showing of initial support. The two are not, by their very nature, interchangeable. *State ex rel. St. Louis Regional Health Care Corp. v. Wamser,* 735 S.W. 2d 741 (1987).

Initiatives that are facially unconstitutional are subject to pre-election challenge, and an initiative which on its face prohibits what relevant statutes permit is unconstitutional. *Noel v. Bd. of Election Commissioners*, 465 S.W.3d 88 (Mo.App.E.D. 2015)(proposed initiative forbidding city tax credits for "unsustainable energy producers" was in conflict with state economic development tax incentive statutes and could not be submitted to voters).

McQuillin:

16.48—16.70 Initiative and Referendum

Section 2 Petition required.

Such an ordinance shall be proposed by petition signed by registered voters equal in number to five percent or, in case the proposed ordinance is for the submission of an amendment to the charter, ten percent of all the registered voters of the city at the time of the last preceding regular mayoralty election. Each of the papers comprising the petition shall contain the proposed ordinance in full and designate by names and addresses five persons as the committee of the petitioners.

City Counselor Ops.: 10027, 10507

Cases:

This provision does not require a summary statement to be included in an initiative petition; the Charter standard prevails on statutes on this point. *Noel v. Bd. of Election Commissioners*, 465 S.W.3d 88 (Mo.App.E.D. 2015).

Section 3 Procedure employed in recall to be followed.

Each such petition and the papers comprising same shall be governed by, and proceedings shall be had thereon in accordance with, the provisions of section 3 and 5 of article III concerning the recall, but construing said sections with reference to the petition and the sufficiency thereof required by this article.

City Counselor Ops.: 10027

Section 4 Certification of petition; submission of proposed ordinance to voters.

If the board of election commissioners find that the petition, with supplements, if any, is sufficient, it shall forthwith certify that fact, together with a copy of the petition, omitting signatures, to the board of aldermen. Unless the proposed ordinance is, without amendment, adopted and approved by the mayor, or adopted, without amendment, over his veto, within sixty days after the regular meeting of the board of aldermen next after said certification, or unless four members of the committee of the petitioners shall, within fifteen days after the expiration of said sixty days, state in writing to the clerk of the board of aldermen that there is no necessity for submitting the proposed ordinance to the voters, said clerk shall forthwith certify the failure to adopt same to the board of election commissioners. Said board of election commissioners shall thereupon provide for submitting said proposed ordinance, in its original form, to the voters at the first election at which such submission may lawfully be had, not less than thirty days after such certification to it by said clerk, and if there is no such election within ninety days after such certification, and the petition shall be signed by registered voters equal in number to seven per cent, or in case the proposed ordinance is for the submission of an amendment to the charter, fifteen per cent, of all the registered voters of the city at the time of the last preceding regular mayoralty election, then such submission shall be at a special election to be held within such ninety days if legally possible, otherwise at the earliest day on which such submission may be had at either a general or special election.

Cases:

This provision permits action earlier than the deadlines. *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926).

Section 5 Form of ballot; adoption of ordinance; publication.

The ballots shall state the nature of the proposed ordinance, and to the right thereof in bold type the words "Yes" and "No" one above the other. To vote for such ordinance the voter shall strike out the word "No" and to vote against it, the word "Yes." If a majority voting on the proposed ordinance vote in favor thereof, it shall be an ordinance of the city, in effect ten days thereafter, and the board of election commissioners shall certify a copy thereof and the fact of its adoption to the register who shall number said ordinance and file

and preserve said copy and certificate in his office. Such ordinance shall be published and printed copies thereof made for distribution as provided for other ordinances.

Section 6 Amendment or repeal of initiated ordinance.

No ordinance adopted at the polls under the initiative shall be amended or repealed by the board of aldermen except by vote of two-thirds of all the members, nor within one year after its adoption.

Section 7 Charter Commission.

1. In accordance with the provisions of the Missouri Constitution, and in addition to the people's power of initiative, as described in Section 1 of Article V, the lawmaking body of the City of St. Louis may submit proposals for the amendment or revision of the City Charter to the qualified voters through a Charter Commission process in the manner hereinafter provided.

2. After April 4, 2023, and before August 1, 2023, and every ten (10) years thereafter, or upon the certification of a petition as provided for in Paragraph F of this subsection, a Charter Commission shall be appointed to consider whether to revise and amend the charter according to the following process.

A. Application: Within five (5) days of certification of April 4, 2023 election results, and on March 1 every ten (10) years thereafter, or within ten (10) days of certification as provided in Paragraph F, the Mayor of the City of St. Louis shall publish and make available to the public an application to serve on the Charter Commission. Such application shall remain open for fifty (50) days, shall verify applicant's eligibility under the provisions of subparagraph a of this paragraph, and require applicants to disclose conflicts of interest and inform applicants that their responses will be made public.

a. Eligibility Criteria:

i. Be registered voters in the City of St. Louis for at least two (2) consecutive years immediately preceding the date of appointment to the Commission.

ii. Be free of conflicts of interest. For the purposes of this bill, a conflict of interest arises if, in the two years immediately preceding the date of appointment to the Commission, an applicant, or a first-degree relative of the applicant has:

1. Been a lobbyist representing clients with interests in front of city government; or

2. Have financial or service contracts with any City department or office.

B. Recommendation: Within five (5) days of applications closing, the Mayor's Office shall provide copies of each application, categorized by the ward in which the applicant resides, to the Board of Aldermen for review. Within ten (10) days of receipt of applications, each member of the Board of Aldermen shall review the applications and select three (3) applicants to forward to the Mayor's office for nomination. If any member of the Board of Aldermen fails to select three (3) applicants by the timeline herein, the member forfeits their unselected applicants.

C. Nomination: Within fourteen (14) days of receipt of aldermen's recommendations, the Mayor shall deliver, from the pool of recommended applicants, nine (9) nominations to serve on the Charter Commission to the Board of Aldermen for confirmation. Said nominations to the Charter Commission shall be made so as to provide for a total geographical representation of the residents of this City.

1. Geographical representation shall mean:

a. Three nominations from the Mayor shall come from the geographical area south of Arsenal Street and extending to the city boundaries to the east, west, and south; and

b. Three nominations from the Mayor shall come from the geographical area north of Page Boulevard at the western city limit east to Martin Luther King Drive, continuing north of Martin Luther King Drive to the eastern city limit, and extending to the northern city boundaries; and

c. Three nominations from the Mayor shall come from the geographical area between Arsenal Street to the south and Page Boulevard and Martin Luther King Drive to the north as described in section (b), extending to the east and west city boundaries.

D. Confirmation: Within twenty-one (21) days of the Mayor's nomination, the Board of Aldermen committee that is ordinarily charged with hearing bills and issues related to intergovernmental affairs shall hold public hearings with public testimony concerning the nominees and the full Board of Aldermen shall vote on whether to confirm the nominees. If a majority of the members of the Board of Aldermen vote to confirm a nominee, the nominee shall be appointed as a Charter Commission member. In the event an individual is not confirmed by a majority of the Board of Aldermen, the Mayor shall deliver to the Board of Aldermen a new

nominee from the pool of applicants recommended by members of the Board of Aldermen for the Charter Commission within four (4) days of the Board of Aldermen voting not to confirm the prior nominee.

E. Alternative Selection Mechanism: If, by August 7, 2023 and every 10 years thereafter there are any remaining open positions on the Charter Commission, any open positions on the Charter Commission shall be filled by random selection according to the following process. At a public meeting of the Board of Aldermen committee that is ordinarily charged with hearing bills and issues related to intergovernmental affairs the names of all remaining candidates recommended to the Mayor by members of the Board of Aldermen, and neither appointed nor rejected by the Board of Aldermen, shall be placed into a container, and names shall be drawn by the Chair of the committee to fill open positions until all open positions are filled. This public meeting shall take place immediately so as to have a fully appointed Charter Commission by the required start date of August 15, 2023 and every 10 years thereafter. If there is a vacancy on the Charter Commission resulting from the death, resignation or inability of any member to serve for more than thirty days, the process outlined in this Subsection E shall be followed within thirty (30) days of the Charter Commission notifying the Board of Aldermen of said vacancy.

F. Initiative Petition Process: Upon the filing with the Board of Election Commissioners in the city of St. Louis of a petition proposing the exercise of the Charter Commission powers hereby granted, signed by registered voters of the city in such number as shall equal five percent of the total vote cast in the city at the last general election for Mayor, and the certification thereof by the Board of Election Commissioners to the mayor, then, within ten days after the certification, the mayor shall publish and make available to the public an application to serve on the Charter Commission and follow the process set out in Paragraphs A, B, C, D and E of this subsection.

3. Charter Commission Operating Framework

A. The appointment of the ten year Charter Commission shall take effect on August 15, and the Charter Commission shall hold its first public meeting no later than 4 September 10. The Charter Commission shall hold public meetings on at least a monthly basis, and shall recommend any Charter amendments to the Board of Election Commissioners within one year of its first public meeting. The Charter Commission shall stand discharged and cease to exist within one year of its first public meeting.

B. In addition to the voting members of the Charter Commission, described in Sub-section 2, the Charter Commission shall include the following six non-voting ex-officio members, who shall not count for the purposes of a quorum, and who shall present information and expertise to the Charter Commission upon request: the Mayor or their designee, the Comptroller or their designee, the President of the Board of Aldermen or their designee, the Director of Personnel or their designee, the City Counselor or their designee, one member from the Labor community to give input on workers' interests and knowledge of public sector employment, and the Chairperson of the Board of Aldermen committee that is ordinarily charged with hearing bills and issues related to intergovernmental affairs. It shall be the responsibility of the City Counselor's Office to ensure that the Charter Commission is adequately staffed and funded.

C. The Charter Commission's mandate shall be to frame charter amendments for submission to the qualified voters. In order to fulfill this duty, the Charter Commission shall solicit input from the public and from experts, publish a draft set of proposed charter amendments not more than 10 months into its term, and hold at least one public hearing before and after the publication of the draft proposed charter amendments. The draft of proposed charter amendments shall be made publicly available no less than two weeks prior to the required public hearing.

D. Each voting member of the Charter Commission shall receive a stipend, if requested, for each meeting they attend to provide for child care, transit, and/or parking vouchers. These stipends shall be vetted by the City Counselor's Office to insure allocations are proportionate to need, and paid out of the City Counselor budget.

E. The Charter Commission shall select officers and make other decisions as necessary subject to a majority vote of the voting members of the commission. In order to submit any new charter, charter provision, or amendment to a charter provision to the Board of Elections Commissioners, it must receive the affirmative vote of two-thirds of all voting members of the Charter Commission.

F. All meetings of the Charter Commission shall be open, public meetings when a quorum is present,

and shall follow the Transparency in Government Law (City of St. Louis Ordinance 69707, April 15, 2014) requirements for Public Meetings.

4. Any charter or amendments framed by the Commission shall take effect on the day fixed therein if approved by vote of three-fifths of the City's qualified voters voting thereon at a general election held on a day fixed by the Commission not less than sixty (60) days nor more than one (1) year after the completion of the charter or amendments.

5. The provisions of the Missouri constitution for framing and adopting a city charter shall apply.

Submission Ordinance No. 71607

Submission Substance: establishing a Charter Commission to consider and recommend amendments and revisions to the voters on a decennial basis following the census or upon initiative by the qualified voters of the City as provided in the bill

Voter Adoption Date: April 4, 2023.

Article VI

REFERENDUM

City Counselor Ops.: 10290

Section 1 When to be exercised.

The people shall have power, at their option, to approve or reject at the polls any ordinance (except it be an emergency measure as defined in section 20 of article IV), such power being known as the referendum and to be invoked and exercised as herein provided.

Cases:

An ordinance for public improvements outside city limits is legislative and subject to the referendum. *State v. Edwards,* 305 Mo. 431, 266 S.W. 127 (1924).

A proposition seeking the repeal of an ordinance and proposing a new ordinance in lieu thereof was held to be a referendum required to meet the requirements of Charter, Art. VI. *State ex rel. St. Louis Regional Health Care Corp. v. Wamser,* 735 S.W. 2d 741 (1987).

Initiative and referendum are essentially different. Initiative is the proposal of legislation by the public. It has no need for tune limits and warrants a lesser initial support to justify submission to the voters. Referendum is the overturning of legislation enacted by the representatives of the people. It requires strict time limits so as not to unduly delay the effectiveness of duly enacted legislation and warrants a greater showing of initial support. The two are not, by their very nature, interchangeable. *State ex rel. St. Louis Regional Health Care Corp. v. Wamser,* 735 S.W. 2d 741 (1987).

Charter provisions governing and limiting the power of referendum do not contravene the referendum provisions of Mo.Const. art. III, §52(a). *State ex rel. Petti v. Goodwin-Raftery*, 190 S.W.3d 501 (Mo.App.E.D. 2006)(construing Florissant charter).

McQuillin:

16.48—16.70 Initiative and Referendum

Section 2 Petition required; reconsideration of ordinance; submission to voters.

If within thirty days after the approval by the mayor of any ordinance (not an emergency measure) or its adoption over his veto, there is filed with the board of election commissioners a petition purporting to be signed by registered voters equal in number to two percent of all registered voters of the city at the time of the last preceding regular mayoralty election, requesting that said ordinance be reconsidered and rejected or referred, then said board shall certify that fact to the register and said ordinance shall not take effect except as hereinafter provided. Within ten days after such filing the said board shall find and certify the number of registered voters signing said petition and what percentage said number equals of the entire number of said registered voters at the time of said election. If the percentage so found is less than the two percent aforesaid, said board shall certify that fact to the register, the said petition shall not be supplemented, and said ordinance shall take effect. If the percentage so found is not less than two percent but is less than seven percent of all said registered voters at the time of said election, then within thirty days after the certification of such finding there may be filed with said board a supplemental petition, shown, by the affidavits appended thereto, to be signed by registered voters to a number which, with the number of registered voters who signed the original petition, equals in number said seven per cent. If such supplemental petition is filed, said board shall within ten days thereafter find and certify the number of registered voters signing same and whether such signers, added to registered voters who signed the original petition, equal in number said seven per cent. If it finds that the aggregate number of such signers does not equal said seven per cent, or if the committee of the petitioners make the statement in writing as hereinafter mentioned, said board shall certify the fact to the register, no further supplementing shall be permitted, and said ordinance shall take effect. If said board finds the original petition, or the original and supplemental petitions together, to be signed by registered voters equal in number to said seven per cent, it shall, forthwith after either such finding, certify that fact, together with a

copy of the petition (omitting the signatures), to the register and to the board of aldermen, and the latter board shall reconsider said ordinance. If on such reconsideration the board of aldermen by a majority vote rejects said ordinance, it shall not take effect. If the board of aldermen fails to finally and wholly reject said ordinance within thirty days after such certification to it, then, unless four members of the committee of the petitioners, within fifteen days after said thirty days expire, state in writing to the clerk of the board of aldermen that there is no necessity for submitting said ordinance to the voters, such clerk shall forthwith certify said failure to the board of election commissioners, which shall thereupon make provision for submitting such ordinance, in such form as it then shall be, to the voters; provided, that the final percentage of signers required to compel submission to the voters of an ordinance amending or repealing an ordinance adopted at the polls under the initiative shall be three percent instead of seven per cent, as required in case of

other ordinances. Such submission shall be at the first election at which it may lawfully be had, not less than thirty days after the last mentioned certification, and if there is no such election within ninety days after such certification, and the original petition or the original and supplemental petitions together shall be signed by registered voters equal in number to twelve percent of all the registered voters of the city at the time of the aforesaid mayoralty election, or if the board of aldermen shall by resolution so request, such submission shall be at a special election to be held within such ninety days if legally possible, otherwise at the earliest day on which such submission may be had at either a general or special election. If the majority of the votes cast thereon at the election shall be for such ordinance, it shall take effect within ten days after such election.

Section 3 Procedure employed in recall to be followed.

The provisions of section 5 of article V, concerning the ballots and manner of voting, the duties of the board of election commissioners and the register, and the publishing of ordinances and printing of copies thereof, shall govern like matters under this article.

Section 4 How petition executed.

The signatures need not all be appended to one paper, but all papers comprising any original or supplemental petition under this article shall be uniform in character and shall each set forth the ordinance in full and contain the request mentioned in section 2, and designate by names and addresses five persons as the committee of the petitioners, and each such paper shall be verified by an affidavit stating the number of signatures thereto and that each signature was made in affiant's presence by, as affiant verily believes, the person whose name it purports to be; and all papers comprising an original or supplemental petition shall be assembled by the petitioners and filed with the board of election commissioners as one instrument. Each signer shall state opposite his signature his residence address. Any person shall be deemed a registered voter within the meaning of this article whose name is unerased on the registration books.

Section 5 What ordinance to prevail where conflict occurs.

If the provisions of two or more initiated or referred ordinances adopted or approved at the same election conflict, the one receiving the highest affirmative vote shall prevail in so far as such provisions conflict.

City Counselor Ops.: 8517, 8592

Section 6 Filing and publication of statements relating to initiative or recall propositions.

Any person may present to the city counselor at least twenty days prior to any election a written statement, not exceeding one thousand words, concerning any ordinance or recall proposition to be voted on at such election. The city counselor shall at least ten days before such election prepare and cause to be published in the paper or papers doing the city publishing a fair summary of all such statements.

Article VII

MAYOR

Section 1 Powers and duties; compensation.

The mayor shall be the chief executive officer of the city and, except as by law or in this charter otherwise provided, have and exercise all the executive power of the city. He shall exercise a general supervision over all the executive affairs of the city and see that each officer and employee performs his duty and that all laws, ordinances, and charter provisions are enforced within the city. His salary shall be twenty-five thousand dollars ($25,000) per annum. All process against the city shall be served upon him. He shall appoint and may remove all nonelective officers and all employees, except as otherwise in this charter provided, but shall not remove any office, department or division head appointed by him, except for cause. He shall execute all deeds and conditional bonds made in the name of the city and see that all contracts with the city are performed and that all legal proceedings necessary to enforce or protect the rights or interest of the city are brought and diligently prosecuted. He shall have a seat and a voice and may introduce ordinances, but not vote, in the board of aldermen, and shall make recommendations and give information to said board as to city affairs. He may remit, with or without condition, fines, costs, forfeitures and penalties imposed for violation of any ordinance or charter provision, and shall annually make a report thereof to the board of aldermen. He may examine the affairs and conduct of any department, board or office and require all officers to

exhibit their accounts and papers and make reports to him. He shall annually appoint a certified public accountant to thoroughly audit all books, accounts and records relating to the fiscal affairs of the city and report the result to him. A copy of said report shall be filed with the register.

The mayor shall devote his entire time to the duties of his office.

City Counselor Ops.: 7622, 8393, 9409, 9843, 9882, 10099

Cases:

The mayor could not be required by statute to assume the additional duty of appointing a firemen's arbitration board. *State v. Cervantes,* 423 S.W. 2d 791 (1968).

The Commission on Retirement, Removal and Discipline has the power to investigate and punish city court judges for misconduct. In re Fullwood, 518 S.W. 2d 22 (1975).

Discharge of police chief by city manager without notice or hearing did not deprive police chief of due process of law. *Owen v. City of Independence,* 421 F.Supp. 1110 (1976).

City Charter did not require plenary pretermination hearing prior to dismissal of municipal judge by mayor. *Edwards v. Schoemehl,* 825 S.W. 2d 683 (Mo. App. 1992).

The discretion conferred upon division-level appointing authorities under civil service rules does not supersede the mayor's chief executive authority under article VII § 1 of the City charter, and the authority of the director of public safety as the fire chief's immediate supervisor under article XIII of the charter, to direct the fire chief to perform his duty to fill vacancies in the fire department. The fire chief was properly demoted for refusing the order. *George v. Civil Service Comm.*, 318 S.W.3d 266 (Mo.App.E.D. 2010).

McQuillin:

12.41—12.44 Mayor or Chief Executive

History:

Submission Ordinance No. 44822

Submission Ordinance Approved February 1, 1949.

Amendment Substance: repeals Section 1, and reenacts same matter but changes Mayor's salary from $10,000 to $20,000 per year.

Voter Rejection Date: April 5, 1949.

Submission Ordinance No. 49821

Submission Ordinance Approved March 9, 1960.

Amendment Substance: repealing Section 1, and reenacting same matter regarding office of Mayor, but raising the Mayor's annual salary from $10,000 to $25,000.

Voter Adoption Date: August 2, 1960.

Section 2 Qualifications.

No person shall become mayor unless he be at least thirty years of age, and shall have been, next before his election, both a citizen of the United States and a resident of the city for five years and an assessed taxpayer of the city for two years, nor [shall any person be elected to such office] if he shall have been convicted of malfeasance in office, bribery or other corrupt practice or crime. If the mayor be so convicted or become a nonresident of the city, he shall thereby forfeit his office.

City Counselor Ops.: 7847, 9843

Editor's Note:

The words in brackets have been supplied for clarification.

Section 3 Devolution of duties in event of disability or absence.

During the mayor's temporary disability or absence from the city his powers and duties shall devolve upon the president of the board of aldermen, or, if said president be also absent or disabled, upon the vice-president of said board.

City Counselor Ops.: 8323, 8403, 9038, 9843, 10056

Section 4 Removal from office.

The mayor may be removed from office by the board of aldermen for crime or misdemeanor in office, for grave misconduct showing unfitness for public duty, or for permanent disability, three-fourths of all the members of said board voting for such removal. The proceedings for such removal shall be upon specific charges in writing, which, with a notice stating the time and place of the hearing, shall be served on the mayor or published at least three times in a daily newspaper. The hearing shall be public, and the mayor shall have the right to appear and defend in person and by counsel, and have process of the board to compel the attendance of witnesses in his behalf. Such vote shall be determined by yeas and nays and the names of the members voting for or against such removal shall be entered on the journal.

City Counselor Ops.: 9843

Section 5 By whom vacancy in office filled.

Whenever a vacancy occurs in the office of mayor, the president of the board of aldermen shall become mayor, and shall hold such office until a successor is elected and qualifies. Such election, if for an unexpired term, shall be at the first general city or state election held fifty days or more after such vacancy occurs. While so holding the office of mayor a temporary vacancy shall exist in the office of the president of the board of aldermen. The vice-president of the board of aldermen

shall hold the office of president of said board during any vacancy therein with the right of succession to the office of mayor.

City Counselor Ops.: 9843

Cases:

The vice-president of the board of aldermen becomes president when the president acts as mayor. *State v. Nolte,* 352 Mo. 1069, 180 S.W. 2d 740 (1944).

The president vacates his office only temporarily while serving as mayor. *State v. Barrett,* 352 Mo. 1130, 180 S.W. 2d 493 (1944). When a successor to the office of mayor is elected in a general election the city must comply with state election laws. *State v. Barrett,* 352 Mo. 1130, 181 S.W. 2d 493 (1944).

Article VIII

CITY OFFICERS AND EMPLOYEES

Cases:

A license collector is a county officer not a city officer. *Preisler v. Hayden,* 309 S.W. 2d 645 (1958).

Requirement of college degree as prerequisite for employment as city health program representative did not constitute prohibited racial discrimination in employment. *Rice v. City of St. Louis,* 607 F2d 791 (1979).

McQuillin:

Ch. 12 Elections, Offices and Officers, Employees and Agents and Municipal Departments

Section 1 Appointments to be made by mayor; tenure.

The mayor shall appoint the following officers at his convenience, to hold for the term for which he was elected and until their successors qualify: assessor, supply commissioner, register, city counselor, city marshal, city court judges, clerk of city courts, president board of public service, director of public utilities, director of streets, director of welfare, director of parks, recreation and forestry, director of health and hospitals and director of public safety.

RSMo:

RSMo 82.550 (2016) Assessor appointed by mayor

City Counselor Ops.: 10080, 10384

Cases:

A statute purporting to make assessors elected state officials was void. *Stocke v. Edwards,* 295 Mo. 402, 244 S.W. 802 (1922).

A statute providing that the treasurer is a county official prevents the mayor from appointing a treasurer. *State v. Dwyer,* 343 Mo. 973, 124 S.W. 2d 1173 (1938).

The positions set out in this section are not subject to the indefinite tenure provisions of Art. XVIII. *Riley v. Holland,* 362 Mo. 682, 243 S.W. 2d 79 (1951).

The Commission on Retirement, Removal and Discipline has the power to investigate and punish city court judges for misconduct. In re Fullwood, 518 S.W. 2d 22 (1975).

McQuillin:

12.69—12.101 Manner of Securing Office and Public Place; Election or Appointment

12.108—12.125 Tenure

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repealing Section 1 and enacting new Section 1, providing for appointment of directors of departments by Mayor, including a Director of Streets (and not Sewers), Director of Parks, Recreation and Forestry, Director of Health and Hospitals (carved out of Department of Public Welfare), amongst others.

Voter Adoption Date: November 4, 1958.

Section 2 Residence requirement.

In addition to other qualifications required by this charter, except as provided hereinbelow, all officers and employees (in non-temporary, full-time positions) must reside in the City of St. Louis on or before 120 days have elapsed after appointment or, if the officer or employee serves in a working test period as provided by Civil Service Rule, then 120 days after the end of an initial working test period, not to exceed one year, and all employees and officers must maintain residence within the City of St. Louis during the entire tenure of their employment or of their appointment as an officer after said 120-day period and failing or ceasing so to reside, shall forfeit their office or employment. A waiver to the above residence requirements may be granted to an individual officer or employee, other than a Director or person who acts as a Director of a City Department, on an annual basis by the Civil Service Commission when said officer or employee occupies a position requiring a very high degree of specialized education or skill and when qualified candidates who are willing to fill said position and reside within the City of St. Louis are not reasonably available. The Civil Service Commission shall report annually in writing to the Board of Aldermen on all waivers granted in the preceding year with written explanations for each waiver that was granted.

City Counselor Ops.: 8058, 8215, 8234, 8362, 8368, 9215, 9221, 10080, 10345, 10388, 10426

Cases:

City residency requirement did not violate equal protec-

tion clause of the Fourteenth Amendment. *Slater v. City of St. Louis,* 548 S.W. 2d 590 (1977).

Nondiscriminatory residence requirement will be upheld. *Slater v. City of St. Louis,* 548 S.W. 2d 590 (1977).

Evidence that firefighter was a resident of St. Louis County was insufficient to support finding of Civil Service Commission that firefighter did not reside in the City. The meaning of residence under this section is an objective one of regular and customary physical presence, i.e., where the employee actually lives and stays. *Perry v. City of St. Louis Civ. Svc. Comm.*, 924 S.W.2d 861 (Mo.App.E.D. 1996); accord, *Mertzlufft v. Civil Service Comm.*, 85 S.W.3d 63 (Mo.App.E.D. 2002).

Charter residency requirement did not prevail over statutory provision allowing certain firefighters with over seven years of service to live outside the city limits due to lack of accreditation of city public schools. Statute did not contravene city's home rule powers under Mo.Const. art. VI, §22. *City of St. Louis v. State of Missouri,* 382 S.W.3d 905 (Mo.banc 2012).

McQuillin:

12.59—12.60 Residence

History:

Submission Ordinance No. 57117

Submission Ordinance Approved February 17, 1976. Amendment Substance: amends residency requirements for City employees and officers in Section 2, Article VIII, which now allows exceptions to be granted to the residency requirement and which requires that all officers and employees must reside in the City of St. Louis on or before 120 days have elapsed after the date of his or her employment as an employee or appointee as an officer with the City of St. Louis and all employees and officers must maintain said residence within the City of St. Louis during the entire tenure of his or her employment or of his or her appointment as an officer after said 120-day period and failing or ceasing so to reside, shall forfeit their office or employment. A waiver to the above residence requirements may be granted to an individual officer or employee, other than a Director or person who acts as a Director of a City Department on an annual basis by the Civil Service Commission when said officer or employee occupies a position requiring a very high degree of specialized education or skill and when qualified candidates who are willing to fill said position and reside within the City of St. Louis are not reasonably available. The above residency provisions shall apply to all appointed city officers and employees regardless of date of hiring or appointment of said officer or employee but said provisions shall only apply to Directors or persons who act as Directors of City Departments who are hired or appointed by the City of St. Louis on or after January 1, 1977. The Civil Service Commission shall report annually in writing to the Board of Aldermen on all waivers granted in the preceding year with written explanations for each waiver that was granted.

Voter Adoption Date: August 3, 1976.

Submission Ordinance No. 61198

Submission Ordinance Approved January 31, 1989.

Amendment Substance: adding new Section 2A to provide that the City may determine what bodies performing government or operational functions on behalf of the City constitute City Departments as used in Section 2.

Voter Rejection Date: March 7, 1989.

Submission Ordinance No. 64109

Submission Substance: repealing the former Article VIII, Section 2 of the Charter relating to the requirement of residence for city employees and officers and enacting in lieu thereof a new city employee and officer residence requirement which would require all city employees and officers to reside in the City of St. Louis on or before 120 days have elapsed after the date of said employee's employment as an employee or appointment as an officer or if employee has a working test period 120 days after the end of the initial working test period, providing for a maximum working test period length and providing for a waiver of residency by the Civil Service Commission.

Voter Adoption Date: August 4, 1998.

Section 3 Oath of office.

Every officer, and every employee holding a position upon an annual salary, shall, before entering upon his duties and within such time as may be provided by ordinance, take and subscribe, and file with the register, an oath or affirmation that he has all the qualifications and is not subject to any of the disqualifications named in this chapter [article] for the office or employment he is about to assume; that he will support the constitution of the United States and of this state and the charter and ordinances of the city; that he will be influenced only by the consideration of fitness in the appointment, promotion, demotion, suspension or discharge of officers or employes; that he will not expend nor authorize the expenditure of money otherwise than for adequate consideration and efficient service tot [to] the City; and will faithfully discharge the duties of his office or employment.

City Counselor Ops.: 10128, 10173

Cases:

It is at least debatable whether the oath of office is merely directory. *State v. Mason,* 154 S.W. 2d 67, 348 Mo. 436 (1941).

McQuillin:

11.97 Oath of Office

Section 4 When official bond required; payment of premiums; failure to qualify.

The board of aldermen shall determine by ordinance whether and when any officer or employee shall give a bond and the amount and character thereof, subject to the provisions of charter. Premiums on all bonds of officers and employees shall be paid by the

city, subject to such regulations as may be provided by ordinance. If any person elected or appointed to an office shall fail to take, subscribe and file an oath or affirmation as aforesaid, or to give bond as required by this charter or by law or ordinance, he shall forfeit his right to the office or employment.

City Counselor Ops.: 8094, 10279

McQuillin:

12.98 Bond

Section 5 Liability of department heads for subordinates.

Each head of a department, office or division shall be responsible for the acts or omissions of officers and employees appointed by him, and may require bonds or other securities from them to secure himself.

City Counselor Ops.: 7929, 8753

McQuillin:

12.226 Wrongful or Negligent Acts of Subordinates

Section 6 Vacancies in elective offices.

Any vacancy in any elective office, except in the board of aldermen, shall be filled by appointment by the mayor until a successor is elected and qualifies. Such election, if for an unexpired term, shall be at the first general city or state election held fifty days or more after such vacancy occurs.

McQuillin:

12.100 When Vacancy in Office Exists

12.101 Authority to Fill Vacancy

Section 7 Salaries and fees generally.

The board of aldermen shall by ordinance fix or provide for the fixing of salaries or compensation of officers and employes, jurors and witnesses, subject to the provisions of this charter. Payment for services of specialists or experts under article XIII, section 8, may be made either with or without an ordinance fixing the compensation for such services. All salaries or compensation under the classified service shall be uniform for like service. No salary in the unclassified service of the city shall be changed during the term for which the recipient was elected or appointed. No city officer shall retain any fees received by virtue of his office, but all fees shall belong to the city and be paid into the city treasury daily, unless some other time is provided by this charter or by law or ordinance.

City Counselor Ops.: 9346a

Cases:

Policemen are city officers, and by ordinance not entitled to witness fees. *State v. Kimmel,* 256 Mo. 611, 165 S.W. 1067 (1914). A city official cannot change a salary established by ordinance. *Orthwein v. City of St. Louis,* 265 Mo. 556, 178 S.W. 87 (1915). The power to fix salaries may be limited by an amendment requiring board members to seek the recommendation of a commission. *Kirby v. Nolte,* 351 Mo. 525, 173 S.W. 2d 391 (1943).

The ordinance, not a contract, fixed the compensation, including rental of a residence of the superintendent of the hospital. *McClellan v. City of St. Louis,* 170 S.W. 2d 131 (1943).

The board of aldermen may enact an ordinance reclassifying employees which results in a salary reduction. *Sanders v. City of St. Louis,* 303 S.W. 2d 925 (1957).

McQuillin:

12.174—12.207a Salaries and Compensation, Fees and Commissions

Section 8 Payment of salaries; maximum established; additional compensation or employment; interest in city contracts; political activity.

Notwithstanding any Charter provision to the contrary, all salaries shall be paid at least monthly. Salaries fixed in this Charter at a certain sum shall be construed to mean not less than such sum. All salaries for positions in the city service shall be established as provided in Article XVIII of this Charter. No officer or employee shall receive any additional compensation for serving in any other capacity under the city while in such office or employment; nor hold any office or employment under the state or United States except in the militia or as a notary public or as a teacher in a public educational institution. A teacher in a public educational institution may hold employment with the city. No officer or employee shall have a personal interest, directly or indirectly, in a contract with the city; and no elective officer shall be a member of the general city committee of any political party. Any person guilty of any willful violation of this section shall thereby forfeit his office or employment.

City Counselor Ops.: 8209. 8685, 8705, 8760, 8855, 9120, 9297, 9376, 9337, 9339, 9426, 9494, 9665, 9716, 9825, 9870, 9997, 10159, 10290, 10451

Cases:

Holding a state job after being laid off by the city does not violate this charter section and the city must pay accrued compensation. *Bruce v. City of St. Louis,* 217 S.W. 2d 744 (1949).

The maximum salary limitation was not repealed by the civil service amendment. *Simmons v. City of St. Louis,* 264

S.W. 2d 928 (1954). Employee is entitled to sick leave benefits accrued while hospital was still a city hospital. *Wilkins v. City of St. Louis,* 404 S.W. 2d 783 (1966).

The maximum salary limitation does not deprive plaintiffs of property without due process of law because they have only an expectation of a higher salary. *Bruce v. Scearce,* 390 F.Supp. 297 (1975). The maximum salary limitation does not violate the equal protection clause. *Bruce v. Scearce,* 390 F.Supp. 297 (1975).

City charter provision limiting salaries of city employees and officials to $25,000 did not violate the equal protection clause of the Fourteenth Amendment. *Bruce v. Scearce,* 390 F.Supp. 297 (1975). Dual employment with city and city board of education violates this charter section. *Hughes v. Civ. Serv. Com'n of City of St. Louis,* 537 S.W. 2d 814 (1976).

Deputy marshal may not act as bondsman, even while on leave of absence. *State ex rel. Wright v. Poelker,* 548 S.W. 2d 285 (1977). Physician, employed by the city, who had already been paid more than the $25,000 charter limit, was not entitled to additional salary allegedly due him. State ex rel. *Yen Pen Chou v. Percich,* 579 S.W. 2d 765 (1979).

Firemen appointed as "acting captains" for a period of time after passing the competitive examination required for assuming the duties of a captain were not entitled to the wages of a captain. *Banta v. City of St. Louis,* 662 S.W. 2d 899 (Mo. App. 1983).

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repealing Section 8, and enacting new Section 8 with same subject matter, but without specification of maximum $10,000 annual salary limitation.

Voter Rejection Date: November 4, 1958.

Submission Ordinance No. 49230

Submission Ordinance Approved January 30, 1959.

Amendment Substance: amend Section 8, to strike the words "but no salary under the City shall exceed Ten Thousand Dollars per annum" to effect removal of any salary ceiling.

Voter Rejection Date: April 7, 1959.

Submission Ordinance No. 49821

Submission Ordinance Approved March 9, 1960.

Amendment Substance: repealing Section 8, and reenacting same matter regarding salaries of City employees, but raising the maximum annual salary for City employees to $25,000.

Voter Adoption Date: August 2, 1960.

Submission Ordinance No. 55716

Submission Ordinance Approved December 10, 1970.

Amending Ordinance No. 55730

Amending Ordinance Approved December 31, 1970, changing date of election from March 3, 1971, to March 9, 1971.

Amendment Substance: repeal Section 8, as amended, limiting City employee salaries to maximum of $25,000 per year, enact new Section 8 without maximum limitation and providing that City employee salaries to be fixed in amount by ordinance recommended by the Civil Service Commission per Article XVIII, as amended.

Voter Rejection Date: March 9, 1971.

Submission Ordinance No. 56391

Submission Ordinance Approved January 4, 1973.

Amendment Substance: repeal Section 8 fixing maximum City officers and employees annual salary at $25,000, by omission of such stated amount in such Section 8.

Voter Rejection Date: April 3, 1973.

Submission Ordinance No. 57155

Submission Ordinance Approved March 17, 1976.

Amendment Substance: permitting Civil Service Commission to recommend salaries in excess of $25,000 per annum in certain professional administrative or technical positions.

Voter Rejection Date: November 2, 1976.

Submission Ordinance No. 57298

Submission Ordinance Approved February 4, 1977.

Amendment Substance: to amend Charter of the City by eliminating the salary limitation of Article VIII, Section 8, and provide that salaries for all City positions shall be established as provided in Article XVIII of the Charter.

Voter Rejection Date: April 5, 1977.

Submission Ordinance No. 57616

Submission Ordinance Approved June 2, 1978.

Amendment Substance: To amend the Charter of the City by changing the requirements of Section 8 of Article VIII by eliminating the salary limitation of $25,000 and by establishing a salary of $55,000 for the Mayor and $45,000 for the Comptroller, and providing that the salaries of all other officials and employees shall be established by ordinance recommended by the Civil Service Commission, provided that the salary for any other City department head or employee may not exceed the salary of the Comptroller and that the salary of every other City employee may not exceed that of his department head.

Voter Rejection Date: August 8, 1978.

Submission Ordinance No. 58082

Submission Ordinance Approved June 3, 1980.

Amendment Substance: To remove $25,000 limitation on salaries per annum for offices and employees and requiring that salaries for all positions of City services be established as provided in Article VIII of the Charter.

Voter Adoption Date: August 5, 1980.

Submission Ordinance No. 62560

Submission Ordinance Approved April 7, 1992.

Amendment Substance: To allow officers and employees of the city to hold office or employment under the state as a part time teacher, with the approval of the Director of Personnel, in a public educational institution.

Voter Adoption Date: November 3, 1992.

Submission Ordinance No. 64951

Submission Ordinance Approved June 15, 2000.

Amendment Substance: Relating to payment of salaries; the establishment of a maximum salary; additional compensation or employment; conflict of interest in city contracts; and political activity.

Voter Adoption Date: November 7, 2000.

Section 9 Suspension and removal from office.

Any elective officer (except a member of the board of aldermen), and any officer appointed by the mayor to fill any elective office, may be suspended by the mayor and removed by the board of aldermen for cause, three-fourths of all the members of said board voting for such removal. Immediately upon any such suspension the mayor shall notify the board of aldermen of same and within ten days shall file with the board charges in writing against such suspended officer, which with a notice of the time and place of the hearing, shall be served on such officer or published at least three times in a daily newspaper. The hearing shall be public, and such officer shall have the right to appear and defend in person or by counsel, and have process of the board to compel the attendance of witnesses in his behalf. If the board be not in session, the mayor shall immediately call a special session to convene in not less than three nor more than ten days thereafter. If, upon a hearing, such officer be not removed, he shall be immediately reinstated in his office. The vote on such question shall be determined by yeas and nays, and the names of the members voting for or against such removal shall be entered on the journal. The clerk of the board shall forthwith certify the action of the board to the mayor. The mayor may appoint some suitable person to fill temporarily such office during the period of any such suspension.

McQuillin:

12.229—12.270 Removal, Suspension, Reinstatement

Section 10 Reports by executive boards and heads of departments.

Each executive board and the head of each department or office (except those under the board of public service, who shall report to said board) shall at least annually on a day or days fixed by ordinance make a full report to the mayor of the transactions of such board, department or office for the year and shall furnish to the board of aldermen or mayor at any time such information as either may require.

City Counselor Ops.: 10388

Section 11 Mayor to determine questions as to division of officers' powers.

All questions between officers as to their relative powers and duties shall be determined by the mayor except as in this charter otherwise provided.

Section 12 Devotion of entire times to duties.

All city officers and employees except the mayor, members of the board of aldermen, members of the Mullanphy Board, efficiency board, complaint board, city plan commission, board of engineers, board of examiners of plumbers, board of children's guardians, the board in charge of the zoological park, and such others as may be excepted by ordinance, shall devote their entire time to the duties of their office.

Article IX

REGISTER

Section 1 Powers and duties; bond; compensation.

The register shall have custody of the city seal, original rolls of ordinances, contracts, conditional bonds, title deeds, certificates and papers, and all other records, papers and documents not required by this charter or by ordinance to be deposited elsewhere, and register them by numbers, dates and contents, and keep such index thereof as may by ordinance be provided. He shall by his signature and the city seal, attest all instruments, signed in the name of the city and all official acts of the mayor; provide, and when required certify, as may be provided by ordinance, under his hand and the city seal, copies of ordinances, records, papers and documents in his office; cause copies of all ordinances to be printed through the supply division and kept in his office for distribution; register and preserve in his office all oaths or affirmations by city officers or employees; may administer such oaths and affirmations; shall give such bond and appoint such deputies and employees as may be provided by ordinance. He shall receive a salary of four thousand dollars per annum.

RSMo:

RSMo Ch. 51(2016) County clerks

Ops. Atty. Gen.:

The registrar of the City of St. Louis is authorized to perform the duties of a county clerk. No. 125, January 18, 1966.

Section 2 Attestation and issuance of licenses and forms.

All blank licenses, tickets, receipts, permits, certificates or other blank forms as may be provided by

ordinance shall be attested and issued by the register, and delivered and charged to the comptroller, who shall countersign and deliver them to the proper officers and take receipts therefor. All such blanks not used shall be returned to the comptroller, who shall cancel and return them to the register.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Article X

LAW DEPARTMENT

Section 1 Composition.

The law department shall consist of a city counselor, five associate and two assistant city counselors, and such other associates, assistants and employees as may be provided by ordinance.

City Counselor Ops.: 7701, 10286

McQuillin:

12.52—12.52c Law Department

Section 2 Powers and duties of city counselor; compensation.

The city counselor shall be the head of the law department; appoint all associates, assistants and employees in his department; shall, through said department, direct the management of all the litigation in which the city is a party, including service in the city courts; represent the city in all legal matters and proceedings in which the city is a party or interested, or in which any of its officers are officially interested; advise the board of aldermen or any committee or member thereof and the mayor and the heads of all departments and through the mayor and heads of departments all other officers of the city as to all legal questions affecting the city's interest; and approve as to form all contracts, deeds, bonds and other documents to be signed in the name of or made to or with the city. He shall render the police department all legal advice and services required by it. He shall receive a salary of eight thousand dollars per annum.

RSMo:

RSMo 86.047 (2016) City counselor to be legal advisor to police retirement system

RSMo 87.160 (2016) Legal advisor-medical board

City Counselor Ops.: 7704, 8048, 8711, 8924, 9741, 9961

Cases:

The city counselor is not required to defend policemen sued for willful and malicious wrongdoing. *Roberts v. City of St. Louis,* 242 S.W. 2d 293 (1951).

Section 3 Qualifications of city counselor and appointees.

The city counselor and associate and assistant city counselors shall be attorneys-at-law entitled to practice in all the courts in the state for at least three years previous to their appointment.

City Counselor Ops.: 7710

Article XI

CITY MARSHAL

City Counselor Ops.: 8753

Section 1 Salary; duties; deputies.

The city marshal shall receive a salary of three thousand dollars per annum; execute and return all process, notices and orders of the mayor, law department, health commissioner and city court judges, and all other process, notices and orders as in this charter or by ordinance may be provided. He shall appoint such deputies and employees as may be provided by ordinance.

McQuillin:

45.10 City Marshal

Section 2 Abolition of office.

In case the police department shall become a department of the city, the marshal's functions shall devolve upon it and be exercised in such manner as may be provided by ordinance, in which event the office of marshal shall be abolished.

Article XII

CITY COURTS

Section 1 Judges.

There shall be two city court judges, who shall have been for at least five years licensed attorneys, one to be known as judge of city court one, and the other as judge of city court two, each of whom shall receive a salary of three thousand dollars per annum.

City Counselor Ops.: 7814, 8920, 10304

Section 2 Powers of board of aldermen; substitute judges; places of holding court.

The board of aldermen may by ordinance adopted by the vote of two-thirds of all the members increase the number of city courts and judges. It may, by ordinance, divide the city into judicial districts and regulate the jurisdiction thereof, and may from time to time alter same. Whenever any such judge is absent or unable to hold court, the mayor shall appoint an eligible person to act during such absence or inability, who shall receive such compensation as may be provided by ordinance. Such courts shall be held in places provided for by ordinance, and, in the absence of such ordinance provision, in such places as the mayor may direct.

City Counselor Ops.: 10304, 10373

Cases:

An action for violation of a city ordinance is civil in nature and the city has the same right to appeal as any other party to a civil action. *City of St. Louis v. Mikes,* 372 S.W. 2d 508 (1963).

Section 3 Jurisdiction.

The city courts shall have jurisdiction of all cases arising under this charter or any ordinance, subject to appeal by the city or the defendant to the St. Louis court of criminal correction in like manner as provided by law for appeals from justices of the peace in criminal cases to their appellate courts; may punish contempts of court by fine not exceeding fifty dollars or by imprisonment not exceeding ten days, or both; enforce its orders and judgments as a court of record may, and render final judgment on any forfeited bond or recognizance returnable to such court, subject to an appeal, as in other cases.

City Counselor Ops.: 10152

Cases:

The city courts are expressly given jurisdiction over all cases arising from any violation of any ordinance of the city. *State v. Mathews,* 162 S.W. 2d 352 (1942); *City of St. Louis v. Bouckaert,* 185 S.W. 2d 886 (1945).

The city may appeal from a judgment for the defendant in a proceeding for violation of a city ordinance. *City of St. Louis v. Penrod,* 332 S.W. 2d 34 (1960).

A proceeding for violation of a city ordinance is a civil action. *City of St. Louis v. Penrod,* 332 S.W. 2d 34 (1960).

McQuillin:

27.01—27.04 The Court and Its Jurisdiction

Section 4 Clerk.

There shall be one clerk for all the city courts, who shall receive a salary of twenty-four hundred dollars per annum, and appoint such deputies and employees as may be provided by ordinance.

City Counselor Ops.: 8753, 10178, 10219, 10304.

Article XIII

BOARD OF PUBLIC SERVICE

City Counselor Ops.: 8271, 9858, 10232, 10403

Cases:

Empowering the board of public service to ascertain if applicant comes within ordinance's specifications is not an invalid delegation of legislative authority. *Ex parte v. Lockhart,* 171 S.W. 2d 660, 350 Mo. 1220 (1943).

Section 1 Creation and composition.

There shall be a board of public service, consisting of the president of said board, and six directors, who shall be known as director of public utilities, director of streets, director of welfare, director of parks, recreation and forestry, director of health and hospitals and director of public safety. They shall be the heads of and exercise supervision over their respective departments hereby created, as follows: department of the president, department of public utilities, department of streets, department of welfare, department of parks, recreation and forestry, department of health and hospitals, and department of public safety, provided, however, that, notwithstanding anything to the contrary stated herein, effective July 1, 2029 the department of streets shall be known as and shall become the department of transportation with the transition thereto and having such powers and duties as are set forth herein, and the director of streets shall on that date be known as and become the director of transportation, and shall be the head of and exercise supervision over the department of transportation.

City Counselor Ops.: 9791, 10304, 10384

Cases:

State school board need not comply with city's sewer requirements when state standards are established. *Board of Education v. City of St. Louis,* 267 Mo. 356, 184 S.W. 975 (1916).

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repealing Section 1, and enacting a new Section 1, relating to the constituency of the Board

of Public Service to include the Directors of Streets, Parks, Recreation and Forestry, and the Director of Health and Hospitals (carved out of Department of Welfare).

Voter Adoption Date: November 4, 1958.

Submission Ordinance No. 57172

Submission Ordinance Approved March 23, 1976.

Amendment Substance: changing the name of the Department of Welfare as it appears in Sections 1 and 14-A of Article XIII to the Department of Human Resources, and changing the title of the Director of Welfare as said title appears in Sections 1 and 14-A(a), (b), (c), (d), and (e), to Director of Human Resources.

Voter Rejection Date: November 2, 1976.

Submission Ordinance 71895 Approved November 7, 2024.

Section 2 Qualifications of certain members.

The president of the board and the directors of public utilities shall be engineers of technical training, of at least ten years' experience, and qualified to design as well as to direct engineering work. The director of transportation shall be appointed by the mayor and shall have qualifications to be determined by ordinance.

City Counselor Ops.: 7895, 9418

History:

Submission Ordinance 71895 Approved November 7, 2024.

Section 3 Designation of deputies.

Any member of the board of public service may designate any officer in any department under said board to act as his deputy, but such deputy shall have no vote on the board.

City Counselor Ops.: 8078, 9913, 9845

Section 4 Meetings; quorum; proceedings.

The board of public service shall meet at least once each week at its office. The president of the board shall preside at its meetings. A majority of said board shall constitute a quorum for the transaction of business, but no final action shall be taken in any matter concerning the department of any absent member unless such matter has been made the special order of the day. Said board shall furnish through its president to the mayor and the board of aldermen such data and information as may be required, or which it may from time to time deem necessary; prescribe rules and regulations necessary and proper to carry out its functions; appoint a secretary and such other employees as may be provided by ordinance; and keep a record of its proceedings which shall be open to the public. Final action on any matter shall be taken by yeas and nays and entered on its record. An abstract of its proceedings shall be published in the paper or papers doing the city publishing.

City Counselor Ops.: 8025, 9567, 9944, 10268, 10304

Section 5 Powers and duties.

The board of public service shall have power:

City Counselor Ops.: 8365, 8528, 9311, 9718, 10270, 10304

Cases:

An ordinance providing for condemnation does not need the board's approval. *City of St. Louis v. Breuer,* 223 S.W. 108 (1920).

(a) *Supervision of departments.* To exercise supervision and control over the aforesaid departments and the heads thereof.

City Counselor Ops.: 10318

(b) *Permits for use of public places.* To grant permits to occupy or use portions of any public grounds, highways, streets, alleys or other public places, consistent with the public use thereof and not inconsistent with any law or general ordinance, including permits for switch connections, and any such permit may be revoked by said board at will; but this power shall never be deemed to vest in said board the right to grant franchises.

City Counselor Ops.: 7125, 7657, 7658, 7661, 7846, 8024, 8028, 8100, 8237, 8310, 8343, 8378, 8427, 8431, 8535, 8939, 8962, 9003, 9018, 9617, 9699, 9804, 9829(I), 10008, 10023, 10425

Cases:

The board may issue certificates of necessity and convenience to public movers pursuant to ordinance. *Ex parte Lockhart,* 350 Mo. 1220, 171 S.W. 2d 660 (1943).

(c) *Permits for private businesses.* To grant permits, according to such general rules and regulations as may be provided by general ordinance, in relation to any private business required by ordinance to have a permit as a condition of or in connection with its conduct or operation.

City Counselor Ops.: 8378, 8427, 8910

Cases:

The board may issue certificates of necessity and convenience as a prerequisite for movers to engage in their business. *Ex parte Lockhart,* 350 Mo. 1220, 171 S.W. 2d 660 (1943).

(d) *Grants and dedications of property.* To accept or reject grants or dedications, absolute or conditional, of highways, streets, boulevards, parkways, alleys or other property for any public use. No plat of any addition or subdivision, or any plat or map attached to any deed, shall be filed or recorded in the recorder's office unless the same shall first be approved by the board as

to public highways, streets, boulevards, parkways, alleys or other public places represented thereon, and the grades thereof, except plats accompanying judgment or orders of court in partition and other suits where such plats form a part of such proceedings.

City Counselor Ops.: 8722, 8970, 9574, 9818, 9974, 10318, 10334

Cases:

When an ordinance is for a public work it must be first proposed by the board. *American Tobacco Co. v. Missouri Pac. Ry. Co.,* 247 Mo. 374, 157 S.W. 502 (1912).

Board was authorized to accept deed waiving damages for grading the streets. *Stapenhorst v. City of St. Louis,* 287 Mo. 285, 229 S.W. 754 (1921).

(e) *Establishment of grades.* To establish the grades of the center line of all public highways, streets, boulevards, parkways and alleys. Upon demand of the owner of the property abutting on any public highway, street, boulevard, parkway or alley, the board shall determine the grade of the line of said public highway, street, boulevard, parkway or alley forming the boundary line of such property.

City Counselor Ops.: 8722

(f) *City engineering, construction and reconstruction.* To control and conduct any and all engineering, construction and reconstruction work undertaken by the city and to supervise all such work in which the city is interested. All plans and specifications for such work shall be prepared under the direction of the board and be subject to its approval.

City Counselor Ops.: 7675, 7846, 8203, 8962, 9343

(g) *Additional powers and duties.* To make such recommendations, exercise such powers and perform such duties as may be required of it by this charter or by ordinance.

City Counselor Ops.: 7675, 9791

Section 6 Organization of departmental divisions.

Said departments shall have divisions established herein, by the head of each department, or by ordinance. The head of each department shall appoint all heads of divisions in their department and any officers and employees in their department not assigned to a division. The head of each division shall manage their division and appoint all officers and employees therein.

City Counselor Ops.: 8209, 9485

History:

Submission Ordinance 71895 Approved November 7, 2024.

Section 7 Departmental relations; distribution of powers and duties.

All departments under the board of public service shall cooperate, and the employees or assistants in any one department or division may, under the order of the board, be temporarily utilized by any other department or division. All questions as to the distribution of powers or duties between such departments shall be determined by the board.

City Counselor Ops.: 9486, 9802, 10038, 10049, 10394

Section 8 Employment of specialists.

The board may at any time, with the approval of the board of estimate and apportionment, appoint specialists or experts in connection with any public work or improvement for which an appropriation has been made and pay for their services out of such appropriation.

City Counselor Ops.: 9343, 9885, 10178

Section 9 Department of the president.

The department of the president shall have charge and supervision of all public work and improvements undertaken by the city or in which the city is interested and prepare all plans and specifications therefor, except where supervision work or preparation is herein or by the board of public service otherwise assigned or provided.

Section 10 Department of public utilities—Powers and duties.

The department of public utilities shall have general supervision over the maintenance, equipment, operation and service, and the assessment of rates and charges, of all public utilities owned or operated by the city. It shall execute or cause to be executed all ordinances regulating the construction, reconstruction, extension, maintenance, equipment, operation, service or rates of public utilities operating under franchises, licenses or permits, or compelling extensions of facilities for such service. The director of said department shall make investigations and reports in relation to any of the foregoing matters as may be provided by ordinance or required by the board of public service, and in connection therewith shall have power to subpoena witnesses and order the production of books and papers relating thereto. He shall have charge of the super-

vision of city lighting and of the municipal electric lighting plants and electrical equipment in city buildings.

Cases:

The board has the power to subpoena the president of a public service corporation. *Ex parte Holman,* 197 Mo. App. 70, 191 S.W. 1109 (1917).

Section 11 Department of public utilities—Water division.

There shall be a water division in this department and the head thereof shall be known as the water commissioner. It shall have under its special charge the operation and maintenance of the waterworks and of all facilities for the acquisition and distribution of water. It shall assess water rates as may be provided by ordinance and make out the bills therefor and deliver same to the comptroller, who shall deliver them to the collector, take his receipt therefor, and charge them therewith on the comptroller's books.

As long as any of the "St. Louis Water Bonds" or renewals thereof or bonds issued on the special credit of the waterworks or facilities remain unpaid the water rates shall be fixed at prices that win [will] produce revenue sufficient at least to pay the running expenses of the water division and the interest on all such bonds and renewals.

City Counselor Ops.: 8220, 8595, 8938

Section 12 Accounts of city-owned utilities to be segregated.

The accounts of all public utilities owned and operated by the city and dependent for their revenues upon the sale of their products or services shall be kept separate and distinct from all other accounts of the city, and shall contain proportionate charges for all services performed for such utilities by other departments, as well as proportionate credits for all services rendered.

City Counselor Ops.: 7690, 8938

Section 13 Department of streets/department of transportation.

The department of streets shall have charge of the repairing, cleaning and maintenance of all public highways, streets, boulevards, alleys, bridges, wharves and levees; the sprinkling of streets and the collection and disposal of garbage, ashes and refuse; and except as otherwise provided by law or ordinance shall have charge of the enforcement and execution of all ordinances relating to any of the matters referred to in this section or to the harbor. When, effective July 1, 2029, the department of streets shall be known as and shall become the department of transportation, the department of transportation shall, notwithstanding anything in Section 5 of this Article to the contrary and as may be prescribed by ordinance, have charge of: the planning for safe travel by persons throughout the City by automobile, bicycle, and other modes of transportation, including without limitation pedestrian facilities, bikeways, non-motorized trails (except those that are maintained and operated under the authority or by agreement with the department of parks, recreation and forestry or any other public or private entity), and for conducting and coordinating transportation planning and improvements, including with public transit authorities; the engineering and design of City transportation public works; the repair, cleaning, and maintenance of City streets, alleys, sidewalks, bicycle lanes, bridges, wharves, and levees and the receiving and processing of citizen service complaints regarding the same; the installation, repair, and replacement of traffic lights, street lights, and street signs; the installation, operation, maintenance, and repair of any City-owned modes of public transit; the regulation and coordination of shared micromobility programs by other public and private entities; the planning, design, construction, maintenance, and operation of programs and public improvements related to enhancing and improving the safety of all users of the right of way, including pedestrians, bicyclists and motor vehicle operators; the collection and disposal of garbage, recycling, and refuse; and, except as otherwise provided by law or ordinance, have the responsibility to enforce and execute all ordinances relating to any of the matters referred to in this section or to the harbor.

City Counselor Ops.: 8333, 8962, 9051, 10038, 10408

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: Section 13 repealed and reenacted as new Section 13, but deleting subsection "(b)" relating to "sewers" and changing the title of the Department of Streets and Sewers to delete "Sewers."

Voter Adoption Date: November 4, 1958.

Submission Ordinance 71895 Approved November 7, 2024.

Section 14-A Department of welfare.

The department of welfare shall be in the charge of a director of welfare appointed by the mayor. The department shall include a division of children's services and a division of adult services.

City Counselor Ops.: 7617, 7669, 7982, 8157A, 8185, 8209, 8357, 9221, 9303, 9485, 9785, 10384

Cases:

Under the Constitution and statutes of the State and the charter and ordinances of the City of St. Louis, the city jail is not under the control or superintendence of the sheriff, but is under the control and management of the jailer, appointed by the mayor, and the sheriff has no legal authority to appoint the jailer or to invade the jail with intent forcibly to expel the jailer or his subordinates or to interfere with the jailer in the discharge of his duties.

The sheriff has charge of the city jail in which are confined prisoners sentenced by the circuit court. *Lefman v. Schuler,* 317 Mo. 671, 296 S.W. 808 (1927).

Complaints to the general welfare board should not be made public. *State v. Reynolds,* 276 Mo. 688, 209 S.W. 100 (1919).

(a) *Director—Qualifications—Duties.* The director of welfare shall be chosen on the basis of administrative ability and demonstrated interest in social welfare problems. He shall be responsible for the supervision and coordination of all activities of the department of welfare, including provision for such legal aid and representation in court for indigents as may be authorized by ordinance.

City Counselor Ops.: 8414, 10384

(b) *Division of children's services.* The division of children's services shall be in the charge of a commissioner of children's services appointed by the director of welfare. The commissioner shall be responsible for operating and maintaining institutions for the care and maintenance of dependent children and the emergency care of delinquent children; for taking charge of and caring for children committed to the city by the courts; for placing children in institutions or foster homes; and for administering such other welfare services, including services to children in their own homes, as may be provided by law or ordinance.

(c) *Division of adult services.* The division of adult services shall be in the charge of a commissioner of adult services appointed by the director of welfare. The commissioner shall be responsible for operating and maintaining detentive, penal, and corrective institutions; for investigating parole applications and making recommendations relative thereto; for exercising supervision in parole and probation cases; and for administering such other welfare services as may be provided by law or ordinance.

(d) *Board of children's welfare services.* There shall be a board of children's welfare services consisting of seven members appointed by the mayor for terms of four years, except that of the members first appointed one shall be appointed for a term of one year, two for terms of two years, and two for terms of three years. All appointed members shall be chosen on the basis of demonstrated interest in the welfare of children. The board shall assist the director of welfare in establishing the policies under which the division of children's services shall operate, and shall advise the director on other matters pertaining to the welfare of children.

(e) *Board of adult welfare services.* There shall be a board of adult welfare services of seven members appointed by the mayor for terms of four years, except that of the members first appointed one shall be appointed for a term of one year, two for terms of two years, and two for terms of three years. All members shall be chosen on the basis of demonstrated interest in the welfare of adults. The board shall advise the director of welfare on matters pertaining to welfare programs of adults, and shall designate three of its members to serve as a parole committee. Said committee shall grant paroles, consistent with the provisions of any law or ordinance.

City Counselor Ops.: 9001

(f) *Mullanphy fund.* The Bryan Mullanphy emigrant and travelers' relief fund shall be administered in such manner as shall be provided by ordinance enacted upon recommendation of the mayor.

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repeal Section 14, and enacting a new Section 14, having 3 new Sections 14-A, 14-B, and 14-C, establishing (in addition to the prior Department of Welfare) two new departments therefrom, namely: Section 14-B, a Department of Parks, Recreation and Forestry; and Section 14-C, a department of Health and Hospitals; each with dependent divisions.

Voter Adoption Date: November 4, 1958.

Submission Ordinance No. 57172

Submission Ordinance Approved March 23, 1976.

Amendment Substance: changing the name of the Department of Welfare as it appears in Sections 1 and 14-A of Article XIII to the Department of Human Resources, and

changing the title of the Director of Welfare as said title appears in Sections 1 and 14-A(a), (b), (c), (d), and (c), to Director of Human Resources.

Voter Rejection Date: November 2, 1976.

Section 14-B Department of parks, recreation and forestry.

The department of parks, recreation and forestry shall be in the charge of a director of parks, recreation and forestry appointed by the mayor. The department shall include a division of parks, division of recreation and a division of forestry.

City Counselor Ops.: 7617, 7669, 7982, 8157A, 8185, 8209, 9221, 9362, 9485, 9785, 10417

McQuillin:

12.47 Parks Department

(a) *Director—Qualifications—Duties.* The director of parks, recreation and forestry shall be chosen on the basis of administrative ability and demonstrated interest in park and recreational problems. He shall be responsible for the supervision and coordination of all activities of the department of parks, recreation and forestry. He also shall grant all permits to occupy or use portions of any park, park area, historic site, playground, swimming pool, garden, or other area owned or used by the city for recreational purposes, and facilities in connection therewith, except highways, streets, or park drives therein, which such occupancy or use is consistent with the public use thereof and is not inconsistent with any law or general ordinance, and any such permit may be revoked by the director at any time.

City Counselor Ops.: 8601, 10008, 10407

(b) *Division of parks.* The division of parks shall be in the charge of the commissioner of parks appointed by the director of parks, recreation and forestry. The commissioner shall be responsible for developing, managing, operating, and maintaining parks, park areas, historic sites, playgrounds, swimming pools, gardens, and other areas owned or used by the city for recreational purposes, and facilities in connection therewith; for operating and maintaining the city's greenhouses and nurseries.

City Counselor Ops.: 9548

(c) *Division of recreation.* The division of recreation shall be in the charge of a commissioner of recreation appointed by the director of parks, recreation and forestry. The commissioner shall be responsible for the development and administration of the city's public recreational program and for general supervision and control over all other recreational activities in the city parks and recreational areas.

City Counselor Ops.: 9548, 10228

(d) *Division of forestry.* The division of forestry shall be in the charge of a commissioner of forestry appointed by the director of parks, recreation and forestry. The commissioner shall be responsible for planting, trimming, and maintaining all city-owned trees along all public highways, streets, boulevards, and parkways; and for maintaining free of weeds all unimproved or unused plots of ground owned by the city.

City Counselor Ops.: 8592, 9107, 10493

(e) *Board of parks and recreation.* There shall be a board of parks and recreation of six members appointed by the mayor for terms of four years, except that of the members first appointed one shall be appointed for a term of one year, one for a term of two years, and one for a term of three years. The board shall advise the director of parks, recreation and forestry on matters relating to parks and recreation, and shall hear complaints of individuals and groups concerning the use of parks and recreational facilities and make recommendations to the director relative thereto.

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repeal Section 14, and enacting a new Section 14, having 3 new Sections 14-A, 14-B, and 14-C, establishing (in addition to the prior Department of Welfare) two new departments therefrom, namely: Section 14-B, a Department of Parks, Recreation and Forestry; and Section 14-C, a department of Health and Hospitals; each with dependent divisions.

Voter Adoption Date: November 4, 1958.

Section 14-C Department of health and hospitals.

The department of health and hospitals shall be in charge of a director of health and hospitals appointed by the mayor. The department shall include the following divisions: (1) health, and (2) hospitals.

City Counselor Ops.: 7617, 7669, 7982, 88024, 8157A, 8185, 8209, 9221, 9485, 9785, 9916, 10289, 10453

Cases:

An ordinance providing for the department of safety rather than the department of health to enforce smoke emission standards was valid. *Ballentine v. Nester,* 350 Mo. 58, 164 S.W. 2d 378 (1942).

A hospital record which is required to be kept is admissible evidence. *Galli v. Wells,* 209 Mo. App. 460, 239 S.W. 894 (1922); *Marx v. Parks,* 39 S.W. 2d 570 (1931); *Knickerbocker v. Athletic Tea Co.,* 285 S.W. 797 (1926).

City can regulate health standards in school lunchrooms. *Bredeck v. Board of Education of City of St. Louis,* 213 S.W. 2d 889 (1948).

McQuillin:

12.51 Health Department

(a) *Director—Qualifications.* The director of health and hospitals shall be a regularly licensed practitioner of medicine and surgery and a graduate of an accredited school of medicine or shall have completed graduate work in a [sic] accredited school of public health to the level of a Master's Degree in Public Health or have been certified by the American Board of Preventive Medicine and Public Health. The director also shall have had at least three years' experience in the practice of medicine and at least three years' experience in public health work, with at least two years of such experience in a responsible administrative capacity.

History:

Submission Ordinance No. 65578

Amendment Substance: repeal Section (a) so Director does not have to be a doctor.

Voter Adoption Date: November 5, 2002.

(b) *Director—Duties.* The director of health and hospitals shall be responsible for the supervision and coordination of all activities of the department of health and hospitals.

City Counselor Ops.: 8021

(c) *Division of health.* The division of health shall be in the charge of a health commissioner appointed by the director of health and hospitals. The commissioner shall have general supervision over the public health and shall be responsible for the administration of the public health programs. He shall adopt, with the approval of the director of health and hospitals and after submission to the board of health for its conclusions and recommendations, and consistent with the provisions of this charter and any law or ordinance, such rules and regulations as will tend to preserve or promote the public health. The health commissioner shall see that the laws and ordinances relating to public health are observed and enforced, and for such purpose he may enter or authorize and require any employee or police officer to enter and inspect any building, lot, or place within the city for conditions affecting the public health, and may declare and abate nuisances as provided by this charter or by law or ordinance. If he finds that the existence of a nuisance is plain and its continuance a danger to public health, he may declare such nuisance and danger and enter such declaration in the records of his office. He shall then immediately abate such nuisance without notice. In all other cases, before abating a nuisance on private property, he shall hold a hearing upon notice given personally to the owner or his agent or by posting on or near the premises, whereupon he may declare the nuisance and order its abatement. If the nuisance is not abated as ordered, he shall abate the same. In case of abatement of nuisance on

private property, the cost thereof may be assessed and collected as a special tax and be a lien on such property as provided by ordinance. Any person causing or maintaining any nuisance shall be liable to the city in a civil action for the expense incurred in abating such nuisance. Failure to abate a nuisance after an order of abatement shall constitute a misdemeanor, punishable as provided by ordinance.

Whenever any malignant, infectious, or contagious disease is threatened or is prevalent in the city, on proclamation thereof by the mayor and with the approval of the mayor and the director of health and hospitals, the health commissioner may take such steps, use such measures, and incur such expense as he deems necessary to avoid, suppress, or mitigate such disease until the mayor proclaims the need therefor ended, notwithstanding anything to the contrary in this charter or in any ordinance.

The health commissioner shall have charge of the quarantine, the dog pound, and the registration of all births and deaths within the city.

The commissioner shall keep a record of his acts and orders and shall file in his office all petitions, documents, and papers belonging thereto. Copies of such records, petitions, documents, and papers when certified by him or as provided by ordinance shall be prima facie evidence in any court of the facts therein contained.

City Counselor Ops.: 9957, 10325

(d) *Division of hospitals.* The division of hospitals shall be in the charge of a hospital commissioner appointed by the director of health and hospitals. The commissioner shall be responsible for the operation of all hospitals, infirmaries, other institutions for the care of the sick, and nursing schools, except such clinics and medical activities as are carried on as functions of the division of health.

(e) *Board of health.* There shall be a board of health of five members appointed by the mayor for terms of four years, except that of the members first appointed one shall be appointed for a term of one year, one for a term of two years, and one for a term of three years. The board shall advise the director of health and hospitals on matters relating to public health; examine all proposed public health rules and regulations and transmit its conclusions and recommendations to the director; and hear and determine such appeals from decisions, rulings, and orders of the health commissioner as may be provided for by ordinance.

City Counselor Ops.: 8453

(f) *Board of hospitals.* There shall be a board of hospitals of eight members appointed by the mayor for terms of four years, except that of the members first appointed two shall be appointed for terms of one year, two for terms of two years, and two for terms of three years. Three members of the board shall be regularly licensed practitioners of medicine or surgery, of which members two shall be appointed after consultation with the deans of medical schools whose faculties assist in making medical services available at city hospitals, and one shall be appointed after consultation with the St. Louis Medical Society. At least two non-medical members of the board shall have had at least three years' experience as a member of said board or of the governing board of an accredited general hospital. The board of hospitals shall advise the director of health and hospitals on matters relating to hospitals. The board shall meet not less than six times a year to receive from the hospital commissioner a report on the activities and problems of his division since the next preceding meeting and such special reports as the board may request.

(g) *Joint meetings of health and hospital boards.* The board of health and the board of hospitals shall meet together upon call of the director of health and hospitals.

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repeal Section 14, and enacting a new Section 14, having 3 new Sections 14-A, 14-B, will 14-C, establishing (in addition to the prior Department of Welfare) two new departments therefrom, namely: Section 14-B, a Department of Parks, Recreation and Forestry; and Section 14-C, a department of Health and Hospitals; each with dependent divisions.

Voter Adoption Date: November 4, 1958.

Submission Ordinance No. 58647

Submission Ordinance Approved August 31, 1982.

Amendment Substance: deletion of Section 14-C and substitution of new Section 14-C, combining the Board of Health and Board of Hospitals.

Rejected by Voters

Section 15 Department of public safety.

The department of public safety shall include the following divisions:

City Counselor Ops.: 8401, 9706, 9790, 10289

(a) *Division of police.* When the city is permitted by law to establish and maintain a police department,

such department shall be a division hereunder. The head of said division shall be known as police commissioner. He may be removed, with or without cause, by the director of public safety or by the governor of the state.

City Counselor Ops.: 7895

(b) *Division of excise.* When the city is permitted by law to establish and maintain an excise department, such department shall be a division hereunder. The head of said division shall be known as excise commissioner. He may be removed, with or without cause, by the director of public safety or by the governor of the state.

(c) *Division of fire and fire prevention.* There shall be a division of fire and fire prevention which shall manage, control and conduct the fire department, and take all proper steps for fire prevention or suppression. The head of said division shall be known as chief of the fire department. In case of emergency, with the approval of the director of public safety, he may purchase or hire whatever may be required for the emergency, with or without authority or appropriation by ordinance therefor. He or any assistant in charge at any fire shall have the same police powers at such fire as the chief of police, under such regulations as may be prescribed by ordinance. He may appoint a fire marshal, whose duty it shall be, subject to the chief of the fire department, to investigate the cause, origin and circumstances of fire and the loss occasioned thereby and assist in the prevention of arson. The chief of the fire department shall have charge of the fire and police telegraph and telephone systems.

City Counselor Ops.: 7926-A, 8077, 8934, 9114, 9220, 9335

Cases:

The city has the power to inspect buildings and enforce fire regulations. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

The discretion conferred upon division-level appointing authorities under civil service rules does not supersede the mayor's chief executive authority under article VII § 1 of the City charter, and the authority of the director of public safety as the fire chief's immediate supervisor under article XIII of the charter, to direct the fire chief to perform his duty to fill vacancies in the fire department. The fire chief was properly demoted for refusing the order. *George v. Civil Service Comm.*, 318 S.W.3d 266 (Mo.App.E.D. 2010).

History:

Submission Ordinance No. 49102

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repealing Section 15(c) and substituting a new Section 16, taking the Division of Fire and Fire Prevention from the Department of Public Safety and establishing a new Fire Department and providing for its administration, hours of working and equipage.

Voter Rejection Date: November 4, 1958.

Submission Ordinance No. 54217

Submission Ordinance Approved June 7, 1966.

Submission Ordinance amended by Ordinance No. 54276, approved August 26, 1966, changing date of election from August 2, 1966, to November 8, 1966. Amendment Substance: repealing Section 15(c) relating to the Division of Fire and Fire Prevention, and enacting a new Section 16 establishing a Fire Department with four dependent subsections (a), (b), (c), and (d), establishing a Fire Chief and other lesser offices, defining their duties, making the Fire Chief a member of the Board of Public Service; restoring replaced fire chiefs to their prior rank and salary; appointment and duties of a Fire Marshal; requiring, except in emergencies, the hours of duty, compensation, etc. of Fire Department members to be by ordinance recommended as per Article XVIII, Civil Service.

Voter Rejection Date: November 8, 1966.

(d) *Division of weights and measures.* There shall be a division of weights and measures, which shall execute all ordinances regulating or relating to weights and measures or the inspection thereof. The head of said division shall be known as the commissioner of weights and measures.

(e) *Division of building and inspection.* There shall be a division of building and inspection. It shall superintend all buildings belonging to or under the control of the city and have charge of the condemnation of unsafe buildings and the prevention of the use of buildings while unsafe, the granting of building permits, the inspection of all buildings in course of construction, the enforcement of all building ordinances, the supervision of all plumbing, the abatement of the smoke nuisance, and the inspection of all boilers, elevators and mechanical plants. The head of said division shall be known as the building commissioner.

City Counselor Ops.: 8624, 9658, 9946, 10085, 10226, 10276, 10394

Cases:

An ordinance providing for the department of safety rather than the department of health to enforce smoke emission standards was valid. *Ballentine v. Nester,* 350 Mo. 58, 164 S.W. 2d 378 (1942).

City can regulate construction and materials of buildings, inspect them, prevent their use when necessary and require alteration for safety. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

The building commissioner has some discretion to deter-

mine the meaning of certain standards. *Kalbfell v. City of St. Louis,* 357 Mo. 986, 211 S.W. 2d 911 (1948).

The building commissioner may condemn a building only when it cannot be made safe. *Aronoff v. City of St. Louis,* 327 S.W. 2d 171 (1959). City may regulate through the use of building codes and provide for their enforcement. *Euge v. Trantina,* 298 F.Supp. 873 (1969).

Article XIV

ART MUSEUM AND ZOOLOGICAL PARK

RSMo:

RSMo 90.640, 90.650 (2016) Zoological parks

Section 1 Authorized.

Provisions may be made in accordance with law or ordinance for a City Art Museum and a Zoological Park.

History:

Submission Ordinance No. 49101

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repealing Article XIV, containing provisions for a Mullanphy (traveler's aid charity) Fund; a Complaint Board to hear complaints against any part of the City; and a parole and probation board, Board of Children's Guardians, City Art Museum, and a Zoological Park; and enacting a new Section 1 (only) making provision for a City Art Museum and a Zoological Park.

Voter Adoption Date: November 4, 1958.

Article XV

DEPARTMENT OF FINANCE

Constitution:

Art. 6 § 23 et seq. Local finances

Art. 10 Taxation

City Counselor Ops.: 8201, 10418

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 1 Composition.

The department of finance shall include the office of the comptroller and the assessment, collection, treasury and supply divisions.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 2 The comptroller.

The comptroller shall have the qualifications and forfeit his office for the cause provided with regard to the mayor; receive a salary of eight thousand dollars per annum; give bond to the city for not less than three hundred thousand dollars; and appoint one deputy comptroller and such other deputies and employees as may be provided by ordinance. The comptroller shall be the head of the department of finance and exercise a general supervision over its divisions, over all the fiscal affairs of the city and over all its property, assets and claims, and the disposition thereof. He shall preserve the credit of the city, and for that purpose, or in case of any extraordinary emergency of any kind, he may, with the approval of the board of estimate and apportionment, and with or without any ordinance or other authority or appropriation therefor, draw warrants on the treasurer or effect temporary loans to pay debts and judgments and other liabilities of the city, or to meet any such emergency, charging such warrants to any excess balances in appropriations made by the general annual appropriation bill and specifically reporting his action to the board of aldermen at its first meeting thereafter. He shall have a seat and a voice but no vote in the board of aldermen. He shall be the general accountant and auditor of the city and the records in his office shall show the financial operations and condition, property assets, claims and liabilities of the city, all expenditures authorized, and all contracts in which the city is interested. He shall require proper fiscal accounts, records, settlements and reports to be kept, made and rendered to him by the several departments and offices of the city, including the license collector's office so far as consistent with law, and shall control and continually audit the same, and prescribe forms, rules and regulations therefor and require their observance. He shall regulate the making of all requisitions for supplies. Except as by this charter or by law or ordinance otherwise provided he shall prescribe and regulate the manner of paying creditors, officers and employees of the city. He shall audit all pay rolls, accounts and claims against the city, and certify thereon the balance as stated by him and draw his warrant on the treasurer therefor, but no pay roll, account or claim,

or any part thereof, except for the preservation of the credit of the city, or in case of extraordinary emergency as hereinbefore provided, shall be audited against the city unless certified by the officer having knowledge of the facts and authorized by law or ordinance, and the amount required for payment of the same appropriated for that purpose by ordinance and in the treasury. He shall see that no contract liability is incurred except for the preservation of the city's credit, or in case of emergency, as hereinbefore provided, without previous authority of law or ordinance. He shall, at least monthly, adjust the settlements of all officers engaged in the collection of the revenue. He may temporarily transfer employees from one division of the department of finance to any other division thereof. He shall have power to administer oaths. He shall receive and preserve in his office all books, vouchers and papers relating to the fiscal affairs of the city. He may destroy any document, books, vouchers, papers or canceled blank forms pertaining to any department, board or office if he, the city counselor, and the head of such department, board or office certify that they are useless and the board of estimate and apportionment so directs. He shall keep a register of all delinquent and special tax bills or other claims of the city in the nature of liens on property and shall release any such bill or claims thereon on proof of payment thereof.

RSMo:

RSMo 137.525 (2016) Duties of city comptroller in assessment of property City Counselor Ops.: 7816, 7836, 7893, 7894, 7917, 7920, 7973, 7994, 8010, 8046, 8046a, 8052, 8202, 8265, 8443, 8448, 8522, 8569, 8676, 8711, 8872, 8866, 8978, 8985, 9013, 9050, 9117, 9166, 9220, 9985, 10334, 10493

Cases:

The city may appropriate bonds instead of appropriating money to pay the cost of public works. *Jennings v. Kinsey,* 308 Mo. 265, 271 S.W. 786 (1925).

The comptroller has broad discretionary powers of a quasi-judicial nature, but he does not control the policy-making powers of the civil service commission. *Kirby v. Nolte,* 349 Mo. 1015, 164 S.W. 2d 1 (1942).

The comptroller can disapprove the expenditure of money out of appropriations only on the ground they are unauthorized or manifest an abuse of discretion. *Kirby v. Nolte,* 349 Mo. 1015, 164 S.W. 2d 1 (1942).

St. Louis ordinance establishing convention and tourism bureau was not inherently incompatible with charter requirements pertaining to the appropriation and use of tax monies. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

Lease agreement executed by city officials without authorization by city did not constitute a legal obligation of the city. *Vigran v. Poelker,* 433 F.Supp. 168 (1977).

Judgment in mandamus compelling comptroller of city to approve and pay certain contracts entered into by the clerk of the circuit court was approved as to the expenditures deemed reasonable by the Judicial Finance Commission and reversed as to the expenditures deemed unreasonable. *Bosley P. Berra*, 688 S.W. 2d 353 (Mo. banc 1985).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 3 Designation of subordinate to affix comptroller's signature.

Any officer or employee in the comptroller's office may be designated by him to draw warrants upon the treasury with the same effect as if signed by the comptroller, such designation to be in writing, in duplicate, filed with the mayor and in the treasury division; provided, that the mayor may make such designation if the comptroller be absent or disabled and there be no one in his office designated to act. Any such designation may be revoked by the comptroller while acting as such by filing the revocation in duplicate with the mayor and in the treasury division.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 4 Composition of assessment division.

The assessment division shall consist of the assessor and such deputy assessors and employees as may be provided by ordinance.

Cases:

The tax assessor does not have the power to accept the dedication of a street. *Granite Bituminous Paving Co. v. McManus,* 244 Mo. 184, 148 S.W. 621 (1912).

Section 5 Assessor.

The assessor shall have the qualifications provided with regard to the mayor; receive a salary of five thousand dollars per annum; and, before entering upon the duties of his office, take an oath similar to that required by law of county assessors. He shall be the head of the assessment division; appoint the deputy assessors and

employees in his division; preserve all maps, plats, books and papers belonging to said division; cause all plats to be prepared, altered and corrected as required by law; receive lists, statements or returns of property; and furnish blanks and information to those desiring to appeal to the board of equalization.

Ops. Atty. Gen.:

Assessment lists and assessment books maintained in office of assessor of City of St. Louis are public records open to public inspection. No. 40, May 13, 1955.

City Counselor Ops.: 9715

Cases:

The office of assessor is a city office, not a county office. *State v. Schramm,* 272 Mo. 541, 199 S.W. 194 (1917). Valuation of property by assessor not conclusive on state board of equalization. *Columbia Terminus Co. v. Koein,* 319 Mo. 445, 3 S.W. 2d 1021 (1928).

Section 6 Deputy assessors.

Each deputy assessor shall take the same oath as the assessor and have the same powers, subject to his control, and shall have been a resident of the city for five years next before appointment.

Section 7 Bonds to be given state.

The assessor and his deputies before entering upon their duties shall give bond to the state; the assessor for twenty thousand dollars and the deputies each for five thousand dollars, or such other sums as may be fixed by ordinance. Each bond shall be executed in duplicate and one forwarded to the state auditor, the other deposited with the comptroller.

Section 8 Assessments to be made.

The assessor, or his deputies under his direction, shall severally assess all the taxable property, real or personal, within the city in the manner provided by law, and for that purpose the assessor may divide and assign the work or any of it among them. They shall commence their assessment on the first day of June in each year, and complete the same, and the deputies make their final reports thereof to the assessor, on or before the first day of January next following. The assessor shall see that the assessment is made uniform and equal throughout the city.

RSMo:

RSMo 92.010 et seq. (2016) Generally, taxation in St. Louis and Kansas City and certain other cities

RSMo 137.485—137.550 (2016) Property Taxes

City Counselor Ops.: 9715

Cases:

The doubling of an assessment may not be done automatically but must be done by the assessor. *State v. Scullin,* 266 Mo. 319, 181 S.W. 40 (1915).

Valuation of property by city assessor not conclusive on state board of equalization. *Columbia Terminus Co. v. Koein,* 319 Mo. 445, 3 S.W. 2d 1021 (1928).

McQuillin:

38.89—38.91 Power to Levy Assessments

Section 9 Assessment books.

The assessor shall make up the assessment books in proper alphabetical order from the reports made by the deputy assessors, the lists or statements made of property, his own view, or the best information he can otherwise obtain, and complete said books on or before the third Monday in March of each year.

Section 10 Board of equalization—Members; oath; compensation.

There shall be a board of equalization consisting of the assessor, who shall be its president, and four taxpaying, property-owning citizens resident in the city for ten years next before their appointment, who shall be appointed annually by the mayor on or before the second Monday in March. Each member shall take an oath similar to that required by law of members of county boards of equalization. Their compensation shall be fixed by ordinance.

RSMo:

RSMo 138.140—138.180 (2016) Board of equalization in St. Louis City

Section 11 Powers and duties.

Said board shall have the power and duty to hear complaints and appeals, and to adjust, correct and equalize the valuations and assessments of any taxable property, real or personal, within the city and to assess and equalize the value of any taxable property, real or personal, within the city, and to assess and equalize the value of any taxable property, real or personal, omitted from the assessment books then under examination by them, and to adjust and correct the assessment books accordingly; provided, that if said board proposes to increase any assessment or to assess any such omitted property, it shall give notice of the fact to the person owning or controlling the property affected, his agent

or representative, by personal notice, by mail, or by advertisement, specifying when and where a hearing shall be granted.

Cases:

The city board has the power to assess omitted property. *State v. Title Guaranty Trust Co.,* 169 S.W. 28, 261 Mo. 448 (1914).

Valuation of property by city assessor is not conclusive on state board of equalization. *Columbia Terminus Co. v. Koein,* 3 S.W. 2d 1021, 319 Mo. 445 (1928).

Section 12 Notice of availability of assessment books and time of sessions.

When the assessment books are completed the assessor shall give two weeks' notice in at least two daily newspapers that said books are open for inspection and stating when the board of equalization will be in session.

Ops. Atty. Gen.:

Assessment lists and assessment books maintained in office of assessor of City of St. Louis are public records open to public inspection. No. 40, May 13, 1955.

City Counselor Ops.: 8847

Section 13 Meetings; evidence; appeals.

The said board shall meet on or before the third Monday in March, annually, and remain in continuous session for at least three hours in the forenoon and at least three hours in the afternoon of each day, except Sunday, for four weeks and no longer. It shall have power to subpoena witnesses and order the production of books and papers, and any member may administer oaths in relation to any matter within its jurisdiction. It shall hear and determine all appeals summarily, and keep a record of its proceedings, which shall remain in the assessment division.

Cases:

The board of license revision does not have the power to equalize the valuations of merchants' statements. That power would belong to the board of equalization. *State v. Alt,* 224 Mo. 493, 123 S.W. 882 (1909). An error in stating its source of power in a notice of a proposed increase in assessment does not deprive the board of equalization of jurisdiction. *State v. Board of Equalization,* 256 Mo. 455, 165 S.W. 1047 (1914).

If the board of equalization acts without jurisdiction certiorari is the proper remedy to quash its record and proceedings. *State v. Board of Equalization,* 256 Mo. 455, 165 S.W. 1047 (1914).

Section 14 Who may appeal.

Any person may appeal in writing to the board of equalization from the assessment of his property, specifying the matter of which he complains.

Section 15 Abstract of books, extension of taxes and issuance of tax bills.

After the assessment books have been corrected, the assessor shall make an abstract thereof showing the amount of the several kinds of property assessed and specifying the amount of value of all taxable property within the city, and certify thereon that the same is a true and correct abstract of all such property in the city so far as he has been able to ascertain. One copy of the abstract, verified by his oath, shall be delivered on or before the fourth Monday in May to the mayor, and another to the state auditor. The assessor shall extend in said assessment books the state, school and city taxes and include in said books such matter as the law shall provide or the comptroller require. The assessor shall then cause tax bills to be made out for such taxes in such forms as the law shall provide or the comptroller prescribe, and deliver them with a duplicate schedule thereof to the comptroller, who shall compare said bills with said books and schedule and test the footings, and then officially stamp said bills and deliver them with one schedule to the collector and take his separate receipts; one for the aggregate of said bills, and another for the state taxes, which last receipt the comptroller shall transmit to the state auditor.

Section 16 Erroneous assessments; duties of comptroller as to taxes.

The comptroller shall hear and determine all complaints of manifest error in the assessment of property for taxes, and in all cases when it shall appear that any property, real or personal, has been erroneously assessed, cause the same to be corrected on the assessment books, and certify to the state auditor all such corrections for credit to the collector. The comptroller shall perform all duties and acts within the city, in regard to the "land delinquent list," the "sale of land for taxes," and the assessment books and tax bills that are imposed on county courts by general law; and make out the "back tax books" and the "back tax bills" required by law.

City Counselor Ops.: 7630

Section 17 Payment of expenses of assessment.

The costs and expenses of the assessment for each year shall be paid by the city. The comptroller shall, as soon as the amount is ascertained, certify the same to the state auditor and obtain his warrant in favor of the city for one-half thereof as provided by law.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 18 Abstracts to be delivered by recorder of deeds.

The day after any instrument affecting the title to real estate is filed in the office of the recorder of deeds, the recorder shall deliver to the assessor an abstract thereof and to the board of public service a copy of such abstract. The assessor shall promptly change the plats in his division accordingly.

Section 19 Composition of collection division.

The collection division shall consist of the collector and such deputies and employees as may be provided by ordinance.

RSMo:

RSMo 82.610 (2016) Assistants, deputies-appointments, terms

RSMo 82.630 (2016) Appointment of additional clerical help

Section 20 Collector—Qualifications, compensation, powers and duties.

The collector shall have the qualifications provided with regard to the mayor and be the head of the collection division. He shall receive such compensation as may be provided by law or ordinance. He shall collect all state, city and school taxes, wharfage, water rates and dramshop licenses, and may collect special assessments, and, unless otherwise provided by ordinance, all indebtedness and claims due the city, and daily pay the same to the city treasurer, except the state taxes, which shall be paid by him as provided by law, and except the school taxes, which shall be paid by him to the board of education of the city monthly, or oftener when required in writing by the treasurer of said board. He shall collect license taxes as permitted by law. He shall appoint the deputies and employees in his division. Each deputy shall have all the powers of the collector, subject to his control.

City Counselor Ops.: 7933, 8222, 9691, 10208

McQuillin:

44.132 Tax Collectors

Section 21 Bond.

The collector, before entering upon the duties of his office, shall give bond to the state, as required by law, and to the city, as may be required by ordinance. Said bond to the state shall be executed in duplicate and one filed with the comptroller and the other with the state auditor.

RSMo:

RSMo 52.020 (2016) Bond-deposits of collections

Section 22 Enforcement of payment of taxes.

The payment of all city and school taxes may be enforced in like manner as may be provided by law for enforcing the payment of state taxes.

Section 23 Composition of treasury division.

The treasury division shall consist of the treasurer, and such deputies and employees as may be provided by ordinance.

Section 24 Treasurer.

The treasurer shall have the qualifications provided with regard to the mayor and be the head of the treasury division. He shall receive a salary of five thousand dollars per annum; before entering upon the duties of his office, give bond to the city for at least one hundred thousand dollars; and appoint the deputies and employees in his division. He shall receive and keep the money of the city, and pay out the same on warrants drawn by the comptroller and not otherwise. All money belonging to the city received by any officer or agent thereof shall be deposited daily in the treasury division unless otherwise provided by law or ordinance, and any delinquency in this respect shall be reported promptly by the treasurer to the mayor and to the comptroller. The treasurer shall deliver duplicate receipts for all money received, one to the party paying, the other to the comptroller, stating the source, the amount and to what account credited. The treasurer shall daily report the balance in the treasury to the comptroller and to the mayor.

RSMo:

RSMo 82.485 et seq. (2016) City treasurer, generally

City Counselor Ops.: 9381, 9691

Cases:

The part of the charter fixing the treasurer's salary is void. *State v. Nolte,* 351 Mo. 275, 172 S.W. 2d 854 (1943). St. Louis ordinance establishing convention and tourism bureau was not inherently incompatible with charter requirements pertaining to the appropriation and use of tax monies. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 25 Depositaries of city funds.

Depositaries of the city funds shall be selected and deposits made therein as provided by law or by ordinance recommended by the board of estimate and apportionment.

RSMo:

RSMo 95.530 (2016) Funds committee—membership—chairman—selection of depository—duties of chairman—agencies and officials to report—bonds and securities—may invest funds, when, how (certain cities)

City Counselor Ops.: 10299

Cases:

St. Louis ordinance establishing convention and tourism bureau was not inherently incompatible with charter requirements pertaining to the appropriation and use of tax monies. *Ruggeri v. City of St. Louis,* 441 S.W. 2d 361 (1969).

McQuillin:

39.47 Custody of Funds

39.47a—39.47b Deposit of Funds

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 26 Composition of supply division.

The supply division shall consist of the supply commissioner and such deputies and employees as may be provided by ordinance.

City Counselor Ops.: 8010

Section 27 Supply commissioner.

The supply commissioner shall be the head of the supply division, receive a salary of five thousand dollars per annum, give bond as required by ordinance, and appoint the deputies and employees in his division.

Section 28 Board of standardization.

The comptroller, supply commissioner and president of the board of public service shall personally or by deputy constitute the board of standardization, whose duty it shall be to classify and standardize all supplies and materials purchased by the city or used for municipal purposes and prepare precise specifications for all supplies to be purchased through the supply division. The board may maintain such laboratories or other methods of testing as may be necessary.

City Counselor Ops.: 8684, 8925, 10228, 10506

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 29 How supplies, equipment and materials are leased and purchased.

Supplies, equipment, and materials for all departments, boards or officers, exclusive of material for public work or improvements, shall be purchased or leased only through the Supply Division, according to such standards and specifications, if any, adopted or prepared by the Board of Standardization, and by advertising for proposals therefore [therefor]. Bids may be for one or more or all the articles advertised for, but there shall be a specific bid on each article. The award may be made to the lowest bidder for any article or to the lowest bidder for the entire requisition or any part thereof; but the Board of Standardization may reject any or all bids or any part of any bid. The Supply Commissioner may contract for supplies, equipment and material in any amounts or for any periods as may be approved by the Board of Standardization, and subject to the provisions of this Charter. In cases of emergency, to be determined by said board, purchases or leases may be made without advertising. Purchases or leases in amounts not exceeding five thousand dollars ($5,000.00) under any one contract may be also made, with the written approval of the Comptroller, without advertising, after securing competitive bids, but there shall be no division of requisitions or contracts for the purpose of securing this privilege. The Supply Commissioner shall inspect and receipt for all supplies, equipment and material.

Supplies, equipment or material shall not be ordered or contracted for by the Supply Division unless the Comptroller shall certify that a fund is applicable for payment thereof.

City Counselor Ops.: 7768, 8010, 8064, 8077, 8196, 8684, 8925, 9007, 9227, 9234, 9347, 9708, 10219, 10228, 10415

History:

Submission Ordinance No. 59773

Submission Ordinance Approved March 5, 1986.

Amendment Substance: repeal Ordinance 59581 and enact new Section 29 of Article XV to increase amount of articles which may be purchased from five hundred dollars to seven thousand dollars without written approval of comptroller without advertising after securing competitive bids.

Voter Rejection Date: June, 1986.

Submission Ordinance No. 60020

Submission ordinance Approved August 21, 1986.

Amendment Substance: repeal Section 29 of Article XV and enact a new Section 29 dealing with the manner and method by which supplies used by the City are purchased, by adding language extending the areas of coverage for the procedures outlined in said Section, and additionally adding the leasing of supplies, equipment, or material to come within the procedures used for purchasing.

Voter Adoption Date: November 11, 1986.

Submission Ordinance No. 61917

Submission Ordinance Approved April 12, 1990.

Amendment Substance: amending provisions to increase the amount of articles which may be purchased from $500.00 to $2,500 under any one contract, with the written approval of the comptroller, without advertising.

Voter Rejection Date: November 6, 1990.

Submission Ordinance No. 65711

Amendment substance: to increase amount of articles which may be purchased from five hundred dollars to five thousand dollars with written approval of comptroller without advertising after securing competitive bids.

Voter Adoption Date: April 8, 2003.

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 30 Public printing and publishing.

The supply commissioner shall have general supervision of the public printing and publishing and shall see that it is executed as may be provided by ordinance, letting the contract or contracts to the lowest bidder in conformity with the provisions of this article so far as they may be applicable. Until otherwise provided by ordinance, and except in condemnation proceedings, all newspaper publishing shall be in at least two daily newspapers, one in English and one in the German language. Provisions may be made by ordinance for the city doing its own printing and publishing.

City Counselor Ops.: 9134, 10219, 10472

Cases:

An ordinance is not required to be published in more than one paper, if only one paper does the city publishing. *State v. City of St. Louis,* 319 Mo. 497, 5 S.W. 2d 1080 (1928).

Absent any allegation that a notice was not published in a paper "doing the city publishing" it is presumed that publication was in conformity with this subsection. *Wiget v. City of St. Louis,* 337 Mo. 799, 85 S.W. 2d 1038 (1935).

Article XVI

BOARD OF ESTIMATE AND APPORTIONMENT

City Counselor Ops.: 9724

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 1 Composition; records; secretary.

There shall be a board of estimate and apportionment which shall consist of the mayor, comptroller and president of the board of aldermen. It shall keep a record of its proceedings and appoint an employee of the comptroller's office to act as secretary without additional compensation.

City Counselor Ops.: 8071

Cases:

The board is not liable for funds illegally spent since the board merely recommends payment of monies. *Mashak v. Poelker,* 356 S.W. 2d 713 (1962).

Official meetings and votes of the board must be open to the public. *Cohen v. Poelker,* 520 S.W. 2d 50 (1975).

The Board of Estimate and Apportionment of the city of St. Louis is a "public governmental body" within the meaning of the "Sunshine Law." *Cohen v. Poelker,* 520 S.W. 2d 50 (1975).

Board did not have discretion to delete or modify certain items included in circuit court's budget estimates without first obtaining relief from Judicial Finance Commission. *State ex rel. Twenty Second Jud. Circuit v. Jones,* 823 S.W. 2d 471 (Mo.banc 1992).

McQuillin:

39.39—39.43 Estimates of Probable Expenditures, or the Budget Law; In General

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 2 Statements and estimates to be furnished board.

The head of every department, board or office shall furnish to the board of estimate and apportionment such statements of receipts and expenses and estimates of receipts and requirements of such department, board or office as said board of estimate and apportionment may require.

Cases:

A funding arrangement for the building of a convention center approved by two-thirds of the electorate did not constitute an amendment to this charter section. *Wunderlich v. City of St. Louis,* 511 S.W. 2d 753 (1974).

Board did not have discretion to delete or modify certain items included in circuit court's budget estimates without first obtaining relief from Judicial Finance Commission. S*tate ex rel. Twenty Second Jud. Circuit v. Jones,* 823 S.W. 2d 471 (Mo.banc 1992).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 3 Annual budget and tax rate.

The Board of Estimate and Apportionment shall submit to the Board of Aldermen on or before sixty (60) days prior to the start of each Fiscal Year for the City of St. Louis a statement showing the estimated receipts and an operating budget for the General Fund and all other operating funds. The budgets shall include a Table of Organization, as well as personnel, supplies, maintenance, repairs, services, and contractual requirements of each department, board, and office for the Fiscal Year beginning on the first day of that Fiscal Year and a comparative statement of the receipts and expenses for the previous year as well as the estimates for the current Fiscal Year, first, however, affording taxpayers an opportunity to be heard thereon as may be provided by ordinance.

The Board of Estimate and Apportionment shall also annually and on or before sixty (60) days prior to the start of each Fiscal Year submit and recommend to the Board of Aldermen a proposed ordinance appropriating the amounts deemed necessary for the Table of Organization, as well as the personnel, supplies, maintenance, repairs, services, and contractual requirements for the use of each department, board, and office for that Fiscal Year and a proposed ordinance establishing the City tax rates for said Fiscal Year, provided that the appropriations for payment of salaries and compensation of officers and employees may, in the discretion of the Board of Estimate and Apportionment, be embodied in a separate proposed ordinance. The Board of Aldermen shall immediately proceed to the consideration of said proposed ordinance or ordinances. The Board of Aldermen or one of its Committees shall meet daily Monday through Friday, until the ordinance or ordinances are finally acted upon, and said Board of Aldermen shall finally act upon said proposed ordinance(s) before the start of the Fiscal Year. The Board of Aldermen may reduce the amount of any item in the appropriating proposed ordinance, except amounts fixed by statute or for the payment of principal or interest of the City debt or for meeting any ordinance obligations, but it may not increase such amount nor insert new items unless specifically approved by the Board of Estimate and Apportionment, or unless the Board of Estimate and Apportionment has failed to recommend the appropriating, City tax rate, and salary compensation proposed ordinance or ordinances on or before sixty (60) days prior to the start of that Fiscal Year.

In the event the Board of Estimate and Apportionment has not recommended said proposed ordinance or ordinances to the Board of Aldermen by or before sixty (60) days prior to the start of the Fiscal Year, the Budget Director for the City of St. Louis shall submit without approval by the Board of Estimate and Apportionment directly to the Board of Aldermen by or before sixty (60) days prior to the beginning of the Fiscal Year an estimate of revenues for the following year and a statement of a Table of Organization and all other expected requirements of each department, board, and office from which the Board of Aldermen shall approve an operating budget through the enactment of an ordinance or ordinances before the start of that Fiscal Year.

Notwithstanding the provisions of Article IV Section 16 of the Charter of the City of St. Louis in the event the Board of Aldermen has not finally acted upon said proposed ordinance or ordinances by the start of the Fiscal Year, the proposed ordinance or ordinances recommended by the Board of Estimate

and Apportionment or in its absence the submission by the Budget Director shall be considered to have been approved by the Board of Aldermen.

City Counselor Ops.: 7660, 7727, 8071, 9047, 9761, 10132, 10209, 10224, 10519

Cases:

Ordinance fixing salaries of class of employees was not an appropriation ordinance requiring an estimate by the board. *State v. Miller,* 315 Mo. 41, 285 S.W. 504 (1926); *State v. City of St. Louis,* 356 Mo. 820, 204 S.W. 2d 234 (1947).

Since the board of aldermen may reduce the amount of any item recommended by the board, it may reduce an appropriation once made. *City of St. Louis v. Smith,* 360 Mo. 406, 228 S.W. 2d 780 (1950).

An ordinance passed for condemnation need not have the recommendation of the board. *City of St. Louis v. Breuer,* 223 S.W. 108 (1920).

A funding arrangement for the building of a convention center approved by two-thirds of the electorate did not constitute an amendment to this charter section. *Wunderlich v. City of St. Louis,* 511 S.W. 2d 753 (1974).

Requirement that board "submit and recommend" proposed budget ordinance sixty days prior to start of fiscal year did not require formal introduction of budget ordinance prior to that date. *State ex rel. Conway v. Villa,* 847 S.W. 2d 881 (Mo. App. E.D. 1993)

History:

Submission Ordinance No. 56786

Submission Ordinance Approved June 27, 1974.

Amendment Substance: repeal Section 3, relating to Board of Estimate and

Apportionment and Board of Aldermen daily meetings to adopt an annual budget of the City; enacting a new Section 3 containing the same subject matter except omitting the requirements of daily meetings to adopt an annual budget.

Voter Rejection Date: November 5, 1974.

Submission Ordinance No. 57082

Submission Ordinance Approved December 5, 1975.

Amendment Substance: to repeal Section 3 requirement that Board of Aldermen meet daily while annual budget and appropriation bills are pending.

Voter Adoption Date: August 3, 1976.

Submission Ordinance No. 60198

Submission Ordinance Approved January 30, 1987.

Amendment Substance: repeal Section 3, relating to Board of Estimate and Apportionment's submission to the Board of Aldermen of an annual statement of receipts and requirements of each department, board or office and bills appropriating amounts necessary; enacting a new Section 3 adding specific time requirements before the start of the fiscal year for certain actions by the Board of Estimate and Apportionment and the Board of Aldermen; providing that the Board of Aldermen or a committee shall meet daily Monday through Friday; providing for increase of amounts and insertion of new items by the Board of Aldermen if the Board of Estimate and Apportionment fails to make timely recommendations; providing if the Board of Aldermen has not finally timely acted before the start of a fiscal year, then the submission of the Budget Director shall be considered an ordinance approved by the Board of Aldermen.

Voter Adoption Date: April 7, 1987.

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 4 How appropriations to be set up.

All appropriations shall be specific and in detail and be segregated according to the functions or kinds of work for which the money is appropriated.

City Counselor Ops.: 7928, 10224

Section 5 Limitations on appropriations.

Except in the general appropriation bill and bills providing for the payment of the principal or interest of the public debt, no appropriation shall be made from any revenue fund in excess of the amount standing to the credit of such fund, and no appropriation shall be made from any fund for any purpose to which the money therein is not lawfully applicable.

City Counselor Ops.: 10224

Section 6 Disposition of unappropriated revenue and transfer of appropriated funds.

Any accruing, unappropriated city revenue may be appropriated from time to time by ordinance recommended by the board of estimate and apportionment; and whenever an appropriation exceeds the amount required for the purpose for which it has been made, the excess or any portion or portions thereof may by ordinance recommended by the board of estimate and apportionment be appropriated to any other purpose or purposes.

City Counselor Ops.: 7928, 10224

Section 7 Reversion of unexpended appropriations.

All unexpended appropriated money, not appropriated by special ordinance for a specific purpose, shall at the end of the current fiscal year revert to the fund or funds from which the appropriation was made.

City Counselor Ops.: 7850, 7928, 9761, 10224

Cases:

Since there is a minimum appropriation for the department of personnel, the unused portion of that minimum does not revert back. *Kirby v. Nolte,* 164 S.W. 2d 1, 349 Mo. 1015 (1942).

Section 8 Fiscal year.

A fiscal year as mentioned in this charter shall commence on the second Tuesday in April of each year, or at such other time as may be provided by ordinance recommended by the board of estimate and apportionment.

McQuillin:

39.38 Fiscal Year

Set by ordinance: 5.14.020

Article XVII

CITY BONDS

Constitution:

Article 6 § 26(a) et seq. Limitations on indebtedness of local governments

RSMo:

RSMo 95.115 (2016) et seq. Financial administration—indebtedness

City Counselor Ops.: 8080

McQuillin:

Ch. 43 Municipal Bonds

Section 1 Purposes for which bonds may be issued.

Some of the purposes, hereby specifically authorized, for which the bonds of the city may be issued and given, sold, pledged or disposed of on the credit of the city or solely upon the credit of specific property owned by the city or solely upon the credit of income derived from any property used in connection with any public utility owned or operated by the city or upon any two or more such credits, are the following: For the acquiring of land; for the purchase, construction, reconstruction or extension of water works, public sewers, buildings for the fire department, bridges and viaducts, subways, tunnels, railroads, street railroads, terminals, ferries, docks, wharves, warehouses, gas or electric light works, power plants, telephone and telegraph systems, or any other public utility; for hospitals, insane asylums, orphan asylums, poorhouses, industrial schools, jails, workhouses, and other charitable, corrective and penal institutions; for court houses, and other public buildings, public parks, parkways, boulevards, grounds, squares, river[s] and other public improvements which the city may be authorized or permitted to make; for paying, refunding or renewing any bonded indebtedness of the city, and for the establishment of a local improvement fund to be used for the purpose of paying in cash for local improvements, such fund to be replenished from time to time by the payment into it of the proceeds of special assessments made on account of such local improvements. The foregoing enumeration shall not be construed to limit any general provision of this charter authorizing the city to borrow money or issue and dispose of bonds, and such general provisions shall be construed according to the full force and effect of their language as if no specific purposes had been mentioned; and the authority to issue bonds for any of the purposes aforesaid is cumulative and shall not be construed to impair any authority to make any public improvements under any provisions of this charter or of any law.

City Counselor Ops.: 7686, 8023, 8207

Cases:

Bonds may be issued for the public purposes of building a civic auditorium. *Halbruegger v. City of St. Louis,* 302 Mo. 573, 262 S.W. 379 (1924).

Bonds may be issued for the public purpose of building a municipal airport. *Dysart v. City of St. Louis,* 321 Mo. 514, 11 S.W. 2d 1045 (1928).

The city may issue bonds to provide welfare to able-bodied men unable to obtain jobs due to economic conditions. *Jennings v. City of St. Louis,* 332 Mo. 173, 58 S.W. 2d 979 (1933).

The enumeration made in this section does not impair the ability to make other improvements. Petition of City of St. Louis, 364 Mo. 700, 266 S.W. 2d 753 (1954).

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: amending Section 1 relating to general obligation or revenue bonds, purposes and uses.

Voter Adoption Date: April 5, 1927.

Section 2 How payment to be made.

Bonds may be so issued as to be payable serially or subject to call.

City Counselor Ops.: 8207, 8830

Section 3 Elections authorizing issues.

No bonds of the city, except bonds for paying, refunding or renewing bonded indebtedness, and except bonds payable only from proceeds of special assessments for local improvements, shall be issued without the assent of two-thirds of the voters of the city

voting at an election to be held for that purpose. All forms, proceedings and other matters with respect to any such election and the amounts, purposes, issue and disposition of bonds may be prescribed by ordinance recommended by the board of estimate and apportionment.

It shall not be necessary in the ordinance calling the election, in the notice of election, in the question submitted, or on the ballot, or in any of the matters preceding the said election, to state the amount of bonds proposed to be issued for each purpose, but it shall be sufficient if the ordinance and notice of election state the total amount of bonds proposed to be voted upon at the said election and in general language the purpose or purposes for which such total amount of bonds is to be issued, and if two-thirds of the voters of the city voting at such lection [election] assent to the issuance of such amount of bonds, then such amount may be issued and such bonds or the proceeds thereof may from time to time, by ordinance recommended by the board of estimate and apportionment, be appropriated in any amount or amounts to the purpose or purposes for which total amount was voted.

RSMo:

RSMo 95.145 (2016) Election

City Counselor Ops.: 8207, 8834, 9365, 9451

Cases:

"Appropriate" means to allot or assign, to set apart, or apply to a particular use or purpose. *Jennings v. Kinsey,* 308 Mo. 265, 271 S.W. 786 (1925).

When revenue from the improvement will be used to pay the indebtedness on the bonds, an election is not required. Petition of City of St. Louis, 264 Mo. 700, 266 S.W. 2d 753 (1954).

History: Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 4 Annual tax levy; sinking fund.

The board of aldermen shall annually levy a tax which will yield not less than one million two hundred thousand dollars to be used exclusively for the payment of the bonded indebtedness of the city existing on the seventh day of April, 1890, and renewals thereof and interest thereon. That portion of each such annual tax levy not required for the payment of the interest maturing during the year on said bonded indebtedness and renewal shall be credited to and shall constitute a sinking fund to be used exclusively for the payment of said bonded indebtedness and renewals. Such levy need not be made except for such interest after the amount in such sinking fund is sufficient to pay all such bonded indebtedness and renewals at maturity. The board of aldermen shall annually levy taxes sufficient to meet the sinking fund and interest requirements of each bond issue.

Section 5 Payment of "St. Louis Water Bonds."

In addition to the foregoing, until there is a sufficient sum in a sinking fund or funds to pay the "St. Louis Water Bonds" and renewals thereof and applicable thereto, the whole net income from the waterworks in excess of what may be necessary for (1) the ordinary construction, reconstruction, extension, operation and repair of the waterworks and facilities, (2) the interest on said water bonds, and (3) the running expenses of the water division shall be credited to, and with the sinking funds heretofore created therefor constitute, a sinking fund to be used exclusively for the payment of said "St. Louis Water Bonds" and renewals.

Section 6 Administration of sinking funds.

The board of estimate and apportionment shall administer all sinking funds and in the course thereof may purchase with any sinking fund, as an investment therefor, bonds of the city, state or United States, preferably city bonds, and may provide for the payment of maturing bonds out of the sinking fund created therefor, and to that end sell bonds held in such sinking fund; provided, that all bonds purchased with the particular sinking fund created therefor shall not be regarded as an investment or be reissued, but shall be canceled. Bonds forming part of any sinking fund and not required to be canceled shall be deposited in a safe deposit vault in the city to which access can be had only by at least two members of the board of estimate and apportionment jointly, one of whom shall be the comptroller. All interest earned on investments or deposits belonging to any sinking fund shall belong to such fund. Whenever the amount in any sinking fund exceeds an amount sufficient to pay all the bonds for which such fund is created, the board of estimate and apportionment may transfer the excess to other sinking funds.

City Counselor Ops.: 10489

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 7 Warrants for payment of bonded indebtedness.

All warrants for the payment of bonded indebtedness or for disbursements out of any sinking fund shall be approved by the mayor and president of the board of aldermen.

City Counselor Ops.: 9769, 10489

Article XVIII

CIVIL SERVICE

City Counselor Ops.: 7802, 8175, 8362, 8387, 9137, 9346, 9346a, 9410, 9627, 9663, 9711, 9927, 9996, 10293, 10298, 10380, 10519

Cases:

The provisions for indefinite tenure and appointments according to merit apply only to the competitive positions in the classified service and not the excepted positions. *Riley v. Holland,* 262 Mo. 682, 243 S.W. 2d 79 (1951).

After September 16, 1941 no one has an absolute right to occupy a classified service position without further examination. *Bokern v. Scearce,* 237 Mo. App. 516, 174 S.W. 2d 355 (1943).

The comptroller cannot control the policy or normal functioning of the civil service commission. *Kirby v. Nolte,* 164 S.W. 2d 1 (1942). This article did not mean the maximum salary limitation in article 8 § 8. *Simmons v. City of St. Louis,* 264 S.W. 2d 928 (1954).

The director of personnel does not have a right of appeal from a decision by the commission. *Scearce v. Simmons,* 294 S.W. 2d 673 (1956).

Within the framework of this article and the charter an ordinance changing the title and salary of employees is valid. *Sanders v. City of St. Louis,* 303 S.W. 2d 925 (1957).

Ordinances pertaining to the civil service must be recommended by the civil service commission to the board of aldermen. *Abernathy v. City of St. Louis,* 313 S.W. 2d 717 (1958).

Notice of dismissal by mail did not satisfy the requirements of the State Merit System Law. *Wolf v. Missouri State Training School for Boys,* 517 S.W. 2d 138 (1974).

A Statutory program for avoiding racial discrimination in employment was not unconstitutional as applied to the City of St. Louis. *City of St. Louis v. Missouri Commission on Human Rights,* 517 S.W. 2d 65 (1974). City charter provision limiting salaries of city employees and officials to $25,000 did not violate the equal protection clause of the Fourteenth Amendment. *Bruce v. Scearce,* 390 F.Supp. 297 (1975).

Firemen appointed as "acting captains" for a period of time after passing the compete five examination required for assuming the duties of a captain were not entitled to the wages of a captain. *Banta v. City of St. Louis,* 662 S.W. 2d 899 (Mo. App. 1983).

Public employees lacked standing, as City employees, to challenge the city's actions in contracting out acute care and long term health services where they failed to exhaust their administrative remedies. *Brock v. City of St. Louis,* 724 S.W. 2d 721 (1987).

Public employees lacked standing as taxpayers to challenge the city's actions in contracting out acute care and long term health services where they failed to show that the city's actions would necessarily result in the loss of revenue to the city or in an increased tax burden and where, in fact, the city's actions would save a substantial amount of money in the foreseeable future. *Brock v. City of St. Louis,* 724 S.W. 2d 721 (1987).

Physicians who, having been offered positions as physicians-in-training and who were assured by city officials that if their work was satisfactory they would advance and complete the program, and who were a special class of civil service, did not have a constitutionally protected property interest to continued employment which entitled them to damages against the city when the city closed the medical program due to budgetary restrictions, financial exigency and other reasons. *Kennedy v. City of St. Louis,* 749 S.W. 2d 427 (Mo. App. 1988).

Article XVIII of the City Charter did not apply to the positions of secretary and clerk-typist employed in the service of the Firemen's Retirement System of St. Louis, thus those positions were not subject to civil service rules. *Firemen's Retirement System v. St. Louis,* 789 S.W. 2d 484 (Mo.banc 1990).

The requirement of recommendation by the Civil Service Commission for enactment of ordinances relating to compensation of city employees does not apply to ordinances relating to employee retirement. *Civil Service Comm. v. Members of Board of Aldermen,* 92 S.W.3d 785 (Mo.banc 2003), distinguishing *Abernathy v. City of St. Louis,* 313 S.W.2d 717 (Mo. 1958).

McQuillin:

12.76—12.81a Civil Service Generally

History:

Submission Ordinance No. 42021

Submission Ordinance Approved April 4, 1941.

Amendment Substance: repealing Sections 1 to 13, enacting a new scheme for a civil service system of personnel employment and administration for the City, in 30 new sections.

Voter Adoption Date: September 16, 1941.

Submission Ordinance No. 49103

Submission Ordinance Approved August 9, 1958.

Amendment Substance: repeal of prior Article XVIII amendment, and substituting in lieu thereof a new comprehensive detailed classified service system.

Voter Rejection Date: November 4, 1958.

Submission Ordinance No. 66327

Submission Ordinance Approved July 23, 2004.

Amendment Substance: allows board of aldermen, upon recommendation of Civil Service Commission, to amend certain provisions of Article XVIII.

Voter Rejection Date: November 2, 2004.

Section 1 Definitions.

The terms defined in this section, when used in this article, have the following meanings except where the context clearly requires otherwise: City Counselor Ops.: 8414, 8494, 10099

(a) "Appointing authority" means any person or group of persons having power by law or ordinance, or by lawfully delegated authority, to make appointments to any position in the city service;

City Counselor Ops.: 9548

(b) "City service" or "service of the city" means all positions as herein defined, that are subject to control and regulation by the City of St. Louis as a municipal corporation or any of its officers or other agencies as such;

City Counselor Ops.: 8616

(c) "Class" or "class of positions" means a definitely recognized kind of employment in the classified service designed to embrace all positions sufficiently alike to be treated alike;

City Counselor Ops.: 7896

(d) "Classified service" means all positions in the city service except those specifically placed in the unclassified service as herein defined;

City Counselor Ops.: 7635, 8185, 8616, 10111

(e) "Compensation" means the salary, wages, fees, allowances, and all other forms of valuable consideration, earned by or paid to any employee by reason of service in any position, but does not include any allowance for expenses authorized and incurred as incidents to employment;

City Counselor Ops.: 9032

(f) "Competitive position" means any position in the classified service not expressly designated as an excepted position in this section;

(g) "Examination" means all the tests of fitness, taken together, that are applied to determine the fitness of applicants for positions of any class;

(h) "Excepted position" means any position in the classified service not subject to the provisions of this article requiring competitive tests of fitness for appointment and such other provisions as, by their terms, apply specifically to competitive positions alone. All such positions, however, shall be subject to all the other provisions of this article insofar as consistent with law and with this exception. The following described positions, and no others, shall be deemed to be excepted positions:

(1) all positions filled by election of the people;

(2) all positions of heads of principal departments and of independent agencies, that are filled by appointment by the mayor;

(3) all positions in the Mayor's Office, except that no employee will lose their job or status due to this change;

(4) all positions of paid members of boards;

(5) all officers and employees of the board of aldermen;

City Counselor Ops.: 7608, 7615, 9192, 9508, 10109, 10384

Cases:

The excepted positions in this subsection are not subject to the indefinite tenure provisions. *Riley v. Holland,* 362 Mo. 682, 243 S.W. 2d 79 (1951).

History:

Submission Ordinance No. 57299

Submission Ordinance Approved February 4, 1977.

Amendment Substance: to amend Charter of the City by changing the requirements of Section 1(h)(3) of Article XVIII and permitting the Mayor to appoint three (3) administrative assistants as "excepted positions" in addition to present positions of executive secretary and secretary and stenographer.

Voter Rejection Date: April 5, 1977.

Submission Ordinance No. 65117

Submission Ordinance Approved February 13, 2002.

Amendment Substance: to amend Charter of the City by including in "Excepted position" all positions in the Mayor's Office, and one position of Chief Staff Officer and one Public Information on the Comptroller's Staff.

Voter Rejection Date: August 6, 2002.

Submission Ordinance No. 66913

Submission Ordinance Approved November 23, 2005.

Amendment Substance: repealing Section 1(h), and enacting a new Section 1(h), relating to the definition of the term "excepted position" as it applies to the civil service system.

Voter Adoption Date: November 6, 2006.

(i) "Employee" means a person legally occupying a position;

City Counselor Ops.: 10111

(j) "Grade" means all positions or classes of positions in the city service that are determined to be of the same level with respect to the difficulty and responsi-

bility of their duties and any other measure of value, and for which the same rate or scale of rates of compensation is prescribed, under the provisions of this article;

(k) "Position" means any appointive or elective office, and any employment, or two or more of such offices and employments the duties of which call for services to be rendered by one person;

City Counselor Ops.: 10111

(l) "Test of fitness" means any means or measure for determining the merit and fitness of persons for original appointment or promotion to positions of a class; and

(m) "Unclassified service" means all positions not subject to the provisions of the charter, ordinances and civil service rules relating exclusively to positions in the classified service, and includes positions, as follows, and no others:

(1) all positions of members of boards, commissions, or committees serving without compensation;

(2) all other positions in which services are rendered without compensation;

(3) all officers and employees of the board of aldermen.

City Counselor Ops.: 7635, 8185, 8616, 10109, 10111

Section 2 Purpose and basic requirements of this article.

It is the purpose of this article to provide a modern and comprehensive system of personnel administration for the city, whereby economy and effectiveness in the personal services rendered to the city, and fairness and equity to the employees and the taxpayers of the city, alike, may be promoted. To accomplish this end the provisions of this article shall be liberally construed. The following principles and policies shall be observed, as basic requirements:

City Counselor Ops.: 8098, 8368, 9414, 8494, 10099

Cases:

The court may decide that certain standards of fitness are unreasonable. *Mahon v. Scearce,* 228 S.W. 384 (1950).

(a) *Merit and fitness.* All appointments and promotions to positions in the service of the city and all measures for the control and regulation of employment in such positions, and separation therefrom, shall be on the sole basis of merit and fitness, which, so far as practicable, shall be ascertained by means of competitive tests, or service ratings, or both.

City Counselor Ops.: 8381

Cases:

A Statutory program for avoiding racial discrimination in employment was not unconstitutional as applied to the City of St. Louis. *City of St. Louis v. Missouri Commission on Human Rights,* 517 S.W. 2d 65 (1974).

(b) *Rates of pay.* Fair and equitable rates of pay shall be provided with due consideration of both the employees and the taxpayers and with due observance of the principle of like pay for like work, and suitable differences in pay for differences in work.

Cases:

The "like pay for like work" requirement of the city charter was not violated by difference between compensation paid to members of security force at airport and compensation paid to members of city police force because the state, not the city, had control over the city police force. *Slater v. City of St. Louis,* 548 S.W. 2d 590 (1977).

City is not required to pay airport police at the same rate as metropolitan police officers, whose pay is determined by the State. *Slater v. City of St. Louis,* 548 S.W. 2d 590 (1977).

Firemen appointed as "acting captains" for a period of time after passing the competitive examination required for assuming the duties of a captain were not entitled to the wages of a captain. *Banta v. City of St. Louis,* 662 S.W. 2d 899 (Mo. App. 1983).

(c) *Employees' interests.* Considerations shall be given to the desires and interests of the employees insofar as consistent with the best interests of the city as an employer, and of the public served.

(d) *Nature of city service.* The city service, so far as practicable, shall be made attractive as a career, and each employee shall be encouraged to render his best service in willing compliance with the provisions of this article.

City Counselor Ops.: 10109

Section 3 Scope of civil service rules.

To give effect to the purpose and requirements set forth in the next preceding section, the civil service rules, hereinafter required to be adopted, shall provide for the following things, among others, with relation to the classified service as defined herein:

City Counselor Ops.: 7979, 8098, 8330, 8494, 10099

(a) *Classification plan.* For a systematic classification plan providing for the classification of all positions on the basis of their duties, responsibilities, and resulting qualification requirements; for definitions of the classes in the classification plan; for the allocation of all positions to their appropriate classes in the classification plan; and, for the amendment and continuous administration of the classification plan. No person

shall be employed or paid in any position until the class of such position has been determined by allocation of the position by the director to its appropriate class;

(b) *Compensation plan.* For development and recommendation to the mayor and aldermen of a systematic compensation plan, and amendments thereto from time to time as deemed necessary, to provide for uniform scales of compensation for all positions of the several classes, by grades, with due relationships among scales of compensation of the several grades, and for the continuous administration of such compensation plan as is adopted by ordinance;

History:

Submission Ordinance No. 57154

Submission Ordinance Approved March 17, 1976.

Amendment Substance: changing requirements of Article XVIII, Secs. 3(b) and 4(a) so as to require inclusion of "excepted" positions such as the Mayor and members of the Board of Aldermen.

Voter Rejection Date: November 2, 1976.

(c) *Competitive examinations.* For determining merit and fitness for appointment and promotion to competitive positions by means of competitive examinations held after due public notice. The tests of fitness in such examinations shall be practical in character and designed fairly to measure the relative qualifications of candidates for positions of the several classes;

City Counselor Ops.: 8892

Cases:

A physical exam requiring firemen to have all natural teeth was unreasonable. *Mahon v. Scearce,* 228 S.W. 2d 384 (1950).

(d) *Certification and appointment of eligibles.* For certification of eligibles and for appointment and promotion to competitive positions on the basis of such tests, subject to a working test period of probation not to exceed one year. One of the highest six (6) eligibles certified or remaining on the list of eligibles certified to be appointed to each vacancy;

Cases:

A Statutory program for avoiding racial discrimination in employment was not unconstitutional as applied to the City of St. Louis. *City of St. Louis v. Missouri Commission on Human Rights,* 517 S.W. 2d 65 (1974).

Where civil service rules provided that eligibility lists for promotions expired after two years, the Civil Service Commission was without authority to revive an expired list after the two year period had elapsed. *State ex rel. Stewart v. Civil Service Comm.*, 120 S.W.3d 279 (Mo.App.E.D. 2003).

History:

Submission Ordinance No. 65436

Submission Ordinance Approved March 11, 2002.

Amendment Substance: to amend Charter of the City by changing Certification and appointment of eligibles and change of temporary appointments.

Voter Rejection Date: August 6, 2002.

Submission Ordinance No. 66912

Submission Ordinance Approved November 23, 2005.

Amendment Substance: repealing Section 3(d), and enacting a new Section 3(d), relating to the certification and appointment of eligible candidates for city employment.

Voter Adoption Date: November 6, 2006.

(e) *Filling vacancies: promotions.* For filling vacancies in higher competitive positions, so far as practicable on competitive examinations, either promotion or open to the public shall result in giving current permanent employees who pass an examination for a position in the classified service a preference, of five points (5) on a scale of one hundred points (100) on such competitive examination;

City Counselor Ops.: 8185

Cases:

A Statutory program for avoiding racial discrimination in employment was not unconstitutional as applied to the City of St. Louis. *City of St. Louis v. Missouri Commission on Human Rights,* 517 S.W. 2d 65 (1974).

History:

Submission Ordinance No. 55731

Submission Ordinance Approved December 30, 1970.

Amendment Substance: repeal Section 3(e) related to filling vacancies in the Classified Service (Civil Service); enacting a new Section 3(e) to provide for a separate eligibility list for promotion within a department, division or agency where the vacancy exists.

Voter Rejection Date: March 9, 1971.

Submission Ordinance No. 66911

Submission Ordinance Approved November 23, 2005.

Amendment Substance: amending Section 3(e) relating to the filling of vacancies within the civil service system.

Voter Adoption Date: November 6, 2006.

(f) *Tenure of employment.* For indefinite tenure of employment in positions in the classified service during meritorious service, except in cases for which definite terms are prescribed by law or charter, and except in cases of temporary appointment hereunder, but with due provision for layoff on termination of the need for employment in any position, or of funds available therefor;

City Counselor Ops.: 7980, 9771

Cases:

The specific exemption from indefinite tenure provided in this subsection shows that article VIII § 1 was not repealed by inconsistency. *Riley v. Holland,* 243 S.W. 2d 79, 262 Mo. 682 (1951).

(g) *Temporary appointments.* For temporary appointments, without competitive tests, to competitive positions, for not to exceed six months, except with the approval of the Director of Personnel, but no extension will exceed three (3) months;

Cases:

This subsection on appointments applies only to appointments made without competitive tests, i.e., to situations where there is no person qualified to assume a competitive position, yet by necessity the position must be filled at least on an interim basis. *Banta v. City of St. Louis,* 662 S.W. 2d 899 (Mo. App. 1983).

Firemen appointed as "acting captains" for a period of time after passing the competitive examination required for assuming the duties of a captain were not entitled to the wages of a captain. *Banta v. City of St. Louis,* 662 S.W. 2d 899 (Mo. App. 1983).

History:

Submission Ordinance No. 65436

Submission Ordinance Approved March 11, 2002.

Amendment Substance: to amend Charter of the City by changing Certification and appointment of eligibles and change of temporary appointments.

Voter Rejection Date: August 6, 2002.

History:

Submission Ordinance No. 66912.

Submission Ordinance Approved November 23, 2005.

Amendment Substance: repealing Section 3(g), and enacting a new Section 3(g), further providing for temporary appointments to competitive positions within the civil service system.

Voter Adoption Date: November 6, 2006.

(h) *Service standards and ratings.* For the establishment of standards of service and a system of service ratings. The service ratings provided shall be given consideration in examinations for promotions, and in connection with increases in pay, layoffs, re-employments, transfers, reinstatements, reductions in pay, demotions, and removals, hereunder. Standards of service shall be established which any employee must meet to qualify for an increase in pay, reinstatement, re-employment, or promotion, and other standards shall be established, failure to meet which shall result in action for decrease in pay, demotion, or removal;

City Counselor Ops.: 7703

(i) *Welfare programs.* For cooperation by the director with appointing authorities in promoting programs of employee welfare, including such training, health, recreation, economic, and other programs as may be deemed desirable;

(j) *Transfers.* For transfers between competitive positions of the same grade for which no additional or different tests of fitness are required, in the same or different departments, for the benefit of the service directly, or indirectly for such benefit by promotion of satisfaction of the employees, or by elimination of supernumerary positions;

(k) *Reinstatement.* For reinstatement to and re-employment in competitive positions after layoff, and after other separation without delinquency or misconduct, where the interests of the service will be served thereby;

(l) *Hours of duty, holidays and leaves.* For recommendations by the commission to the mayor and aldermen, regarding ordinance provisions to regulate the hours of duty, holidays, and leaves of absence, and for administration of any such ordinances adopted. Such ordinance provisions as are adopted shall be administered and carried into effect by the department of personnel herein provided for. The minimum daily, weekly, and annual service required under regular full-time employment shall be fixed by ordinance with due relation to the requirements in private employment in the city and with a view to equity as between positions of different classes and those under different appointing authorities. The requirements may vary for different classes or conditions of employment but shall be uniform in their application to employees of the same classes under like conditions of work. The ordinance provisions shall be enforced by effective control of attendance and absence and audit of pay rolls with reference thereto. Each employee in the classified service shall be required to engage in the actual work of the office or employment held to such extent as his services may be required for the complete discharge of the duties of such office or employment and a failure so to do shall be ground for removal;

City Counselor Ops.: 7700, 7869

(m) *Part-time services.* For payment for part-time services on an equitable basis in relation to the hours employed as compared with the requirements for full-time service. Where less than full-time service is required or rendered in any position, compensation for such service shall be paid on the part-time basis established by such rules;

(n) *Removals and demotions.* For removals, demotions, and decreases in pay in the cases of employees whose service rendered is below satisfactory standards, designed to promote the efficiency of the service. Such action shall be effective only after written notice to, with right of appeal in, the employees affected, and after such investigation as is appropriate to insure [ensure] that the action taken is on the sole ground of merit and fitness;

City Counselor Ops.: 7997, 9012

(o) *Fines and suspensions.* For fines, and for suspensions without pay for not to exceed thirty days, and for other disciplinary measures deemed desirable, of less severity than those set forth in the item next preceding;

Cases:

Although characterized by the civil service commission as a 202-day leave of absence without pay, disciplinary action against employee was in fact a suspension which exceeded the commission's authority. *Stovall v. Civil Service Commission,* 636 S.W. 2d 364 (Mo. App. 1982).

Where civil service commission exceeded its authority by imposing a 202-day suspension against an employee, the employee was entitled to back pay. *Stovall v. Civil Service Commission,* 636 S.W. 2d 364 (Mo. App. 1982).

(p) *Resignations.* For resignations in good standing, for investigation of reported resignations to determine their good faith, for records of the causes of resignations, and for initiating action to remove causes leading to excessive numbers of resignations of capable employees;

(q) *Roster of employees.* For maintenance of a complete official roster of employees showing for each employee, his name, address, class title, rate of pay, and changes in any of them, and such other information as may be deemed desirable;

(r) *Retirement system.* For recommendation if and when permissible under the Constitution and Laws of the state of Missouri, to the mayor and aldermen by the civil service commission of a suitable system for the retirement of employees who, by reason of injury, ill health or age, have become incapacitated for rendering satisfactory service, and for administration by the department of personnel of such retirement system as may be adopted by ordinance;

City Counselor Ops.: 8737

Cases:

Nothing in this subsection limits the board of aldermen's right to reduce an item of an appropriations ordinance for salaries. *City of St. Louis v. Smith,* 360 Mo. 406, 228 S.W. 2d 780 (1950).

(s) *Reports by appointing officers.* For reports by appointing officers of new positions and changes in the positions authorized and in the employments therein, and of attendance and absence, which upon approval by the director shall form bases for audit and approval of pay rolls by the comptroller as to compliance with this article and the rules and ordinance thereunder;

Cases:

Nothing in this subsection limits the board of aldermen's right to reduce an item of an appropriations ordinance for salaries. *City of St. Louis v. Smith,* 360 Mo. 406, 228 S.W. 2d 780 (1950).

(t) *Audit of pay rolls.* For audit of pay rolls by the comptroller as a condition precedent to payment by the treasurer or any other disbursing officer of any claim or account for personal services. The comptroller shall not approve any item of a pay roll or account for payment of any employe, or issue his warrant for any payment therefor, except on evidence satisfactory to him that the person named has been lawfully employed in a position duly authorized and is entitled to payment for actual service in such position or authorized absences therefrom at the rates, for the periods, and in the amounts, covered by such pay roll or account;

Cases:

This subsection simply means that the employee's services must be satisfactory to the employer and does not deprive the employee of any rights. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

(u) *List of nonessential positions.* For the listing of positions deemed nonessential for effective administration of the city's affairs, and for seeing that, as occasion arises, steps be taken toward transfer of the employees therein to any other vacant positions to which they are eligible to be transferred under the provisions of this article, and for prevention of filling of any vacancy occurring therein;

(v) *Administration.* For the administration and enforcement of the provisions of this article and all provisions of ordinances and rules adopted in pursuance thereof, by the director, subject to the rules of the commission and subject to appeal to and review on appeal by the commission;

Cases:

Regulations of Director of Personnel must be consistent with ordinances as well as the charter. *St. Louis Police Leadership Org. v. City of St. Louis*, 484 S.W.3d 882 (Mo.Ct.App.E.D. 2016).

The director is empowered to make administrative deci-

sions which do not include decisions contrary to ordinance enacted by the board of aldermen. *Sanders v. City of St. Louis,* 303 S.W. 2d 925 (1957).

(w) *Examination fees.* Such rules may provide for the charging and collection of reasonable fees from applicants for examinations, as prerequisites to the acceptance of their applications, and in such amounts as are calculated to pay part or all of the cost of preparing and holding the examinations and rating the results thereof.

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 4 Ordinances to be enacted.

The mayor and aldermen shall provide, by ordinance:

City Counselor Ops.: 8098, 8494, 9248, 10099

Cases:

Nothing in this section limits the board of aldermen's right to reduce an item of an appropriations ordinance for salaries. *City of St. Louis v. Smith,* 360 Mo. 406, 228 S.W. 2d 780 (1950).

(a) *Compensation plan.* For adoption of a comprehensive compensation plan for the fixing of rates of pay of all employees in the classified service, and amendments thereto, on recommendation of the civil service commission, and for its application and interpretation. Every appropriation and expenditure for personal services in any position in the classified service thereafter shall be made in accordance with the compensation plan so adopted and not otherwise;

City Counselor Ops.: 7869

Cases:

The language "on recommendation" in this subsection is mandatory. *Kirby v. Nolte,* 351 Mo. 525, 173 S.W. 2d 391 (1943).

Upon the commission's recommendation the board of aldermen may enact an ordinance which lowers the rate of pay set by a prior ordinance. *Sanders v. City of St. Louis,* 303 S.W. 2d 925 (1957).

City charter provision that salaries of firemen shall not be less than those of corresponding ranks of police officers whose pay is fixed by the State General Assembly is not invalid as an improper delegation of legislative responsibility. *State ex rel. St. Louis Fire Fighters Association Local No. 73 v. Stemmler,* 479 S.W. 2d 456 (1972).

The "like pay for like work" requirement of the city charter was not violated by difference between compensation paid to members of security force at airport and compensation paid to members of city police force because the state, not the city, had control over the city police force. *Slater v. City of St. Louis,* 548 S.W. 2d 590 (1977).

History:

Submission Ordinance No. 57154

Submission Ordinance Approved March 17, 1976.

Amendment Substance: changing requirements of Article XVIII, Sections 3(b) and 4(a) so as to require inclusion of "excepted" positions such as the Mayor and members of the Board of Aldermen.

Voter Rejection Date: November 2, 1976.

(b) *Retirement system.* For a contributory retirement system on a sound actuarial basis, if and when permissible under the Constitution and Laws of the State of Missouri, to provide for retirement of employees in the classified service who have become unable to render satisfactory service by reason of physical or mental incapacity;

RSMo:

RSMo 70.600 et seq. (2016) Retirement or pensioning of officers and employees of political subdivisions

Cases:

The requirement of recommendation by the Civil Service Commission for enactment of ordinances relating to compensation of city employees does not apply to ordinances relating to employee retirement. *Civil Service Comm. v. Members of Board of Aldermen,* 92 S.W.3d 785 (Mo.banc 2003), distinguishing *Abernathy v. City of St. Louis,* 313 S.W.2d 717 (Mo. 1958).

(c) *Hours of duty and holidays.* For regulating hours of duty, holidays, attendance, and absence, in the classified service;

City Counselor Ops.: 7869

Cases:

An ordinance providing for overtime compensation was void because it had not been recommended by the civil service commission. *Abernathy v. City of St. Louis,* 313 S.W. 2d 717 (1958).

(d) *Appropriations for department of personnel.* For appropriations for the purposes of the department of personnel, adequate to provide for the effective administration and enforcement of the provisions of this article and the rules and ordinances adopted thereunder. In each fiscal year, such appropriations shall aggregate not less than one-half of one percent of the amount of all expenditures for personal services in the city service in the fiscal year next preceding, and in default of such minimum appropriations or any part thereof, such minimum appropriations or any deficiency therein, nevertheless shall be deemed to have been made;

Cases:

Since there is a minimum appropriation for the depart-

ment of personnel, the unused portion of that minimum does not revert back. *Kirby v. Nolte,* 349 Mo. 1015, 164 S.W. 2d 1 (1942).

(e) *Veterans' preference.* For a preference to be granted to honorably discharged members of the armed services of the United States who successfully pass examinations for a civil service position. The veterans' preference shall not apply to promotional positions.

History:

Submission Ordinance No. 69674

Submission Ordinance Approved February 13, 2014.

Amendment Substance: changing requirements of Article XVIII, Section 4 so as to grant a veterans' preference to applicants who successfully pass examinations for civil service provisions.

Voter Approval Date: November 4, 2014.

(f) *City Residents' Preference.* For a preference to be granted to residents of the City of St. Louis who successfully pass an examination for a civil service position.

History:

Submission Ordinance No. 70433

Submission Ordinance Approved January 30, 2017.

Amendment Substance: changing requirements of Article XVIII, Section 4 so as to grant a preference to applicants who are city residents.

Voter Approval Date: April 4, 2017.

Section 5 Department of personnel.

There is hereby created a department of personnel of the government of the city which shall consist of a director of personnel as head thereof, a civil service commission, and such other employees as may be needed.

City Counselor Ops.: 7778, 8494, 8595, 10252, 10483

Cases:

This section does not control the classification of the job of director as an office for the purpose of residency requirements. *Kirby v. Nolte,* 349 Mo. 1015, 164 S.W. 2d 1 (1942).

Section 6 Civil service commission.

(a) *Qualifications, appointment and term of members.* The civil service commission shall consist of three members who, on the dates of their appointment, shall have been citizens of the United States and residents of the City of St. Louis for at least two years next preceding. They shall be persons whose past records indicate that they favor the merit system of personnel administration. No person shall be eligible to appointment as a member of the civil service commission who holds any other salaried public office or who has held any elective public office or elective position in any political party, or any paid position in any political party, within the four years next preceding the date of his appointment. Members shall be appointed by the mayor without regard to any political consideration. Within thirty (30) days after the adoption of this section, the mayor shall appoint the first civil service commission, designating one member to serve for a term of two (2) years, a second member for a term of four (4) years and the third member for a term of six (6) years from the first day of July, next preceding. All subsequent appointments of members of the commission shall be for six (6) years, except that any vacancy in the membership of the commission occurring at a time other than the expiration of a term shall be filled by the appointment of a member to serve for the unexpired portion of the term.

(b) *Removal of members.* The mayor may remove a member of the commission only upon charges of nonfeasance, malfeasance, or misfeasance in office and after a public hearing to be held not less than ten days after notice to the member so charged, accompanied by a statement in writing of the specific acts charged. At the hearing, the member may be represented by an attorney and shall be entitled to present witnesses in his defense.

(c) *Compensation.* Each member of the commission shall be paid fifteen ($15) dollars for each day on which he has actually attended a meeting of the commission officially held, as a member thereof, but in no case shall any member be paid more than sixteen hundred eighty dollars ($1,680) in any one fiscal year.

City Counselor Ops.: 8494, 9248, 9661, 10252

McQuillin:

12.55—12.56a Civil Service Commission

History:

Submission Ordinance No. 65418

Submission Ordinance Approved February 13, 2002.

Amendment Substance: Pay of commissioners to be set by ordinance.

Voter Rejection Date: August 6, 2002.

Section 7 Commission powers and duties.

The commission shall have power, and it shall be its duty:

City Counselor Ops.: 8301, 8494, 8900, 9661, 9771, 10483

Cases:

The commission has the power to promulgate a rule providing for the dismissal of an employee. *Fleming v. Holland,* 260 S.W. 2d 840 (1953).

An ordinance providing for overtime compensation was void because it had not been recommended by the civil service commission. *Abernathy v. City of St. Louis,* 313 S.W. 2d 717 (1958).

(a) *Administration.* To prescribe, and to amend from time to time as such action is deemed to be desirable, rules for the administration and enforcement of the provisions of this article, and of any ordinance adopted in pursuance thereof, and not inconsistent therewith;

City Counselor Ops.: 7703, 9531

(b) *Ordinances.* To recommend to the mayor and aldermen in accordance with this article, ordinances to provide for:

(1) a compensation plan providing properly related scales of pay for all grades of positions, and rules for its interpretation and application;

(2) a plan for a system for retirement of superannuated and otherwise incapacitated employees, if and when permissible under the Constitution and Laws of the State of Missouri;

(3) regulation of hours of duty, holidays, attendance and absence;

(4) such other matters within the scope of this article as require action by the mayor and aldermen;

(5) such changes in any such matters from time to time as may be deemed to be warranted;

City Counselor Ops.: 7700, 7869, 8098

(c) *Investigations.* To make such inquiries and investigations as it may deem to be warranted regarding the administration and effect of the provisions of this article and of ordinances and rules adopted in accordance therewith, and to make such recommendations to the director and to the mayor and aldermen as in its judgment may be warranted in the premises;

City Counselor Ops.: 9531

(d) *Decisions.* To consider and determine any matter involved in the administration and enforcement of this article and the rules and ordinances adopted in accordance therewith that may be referred to it for decision by the director, or on appeal by any appointing authority, employee, or taxpayer of the city, from any act of the director or of any appointing authority. The decision of the commission in all such matters shall be final, subject, however, to any right of action under any law of the state or of the United States;

City Counselor Ops.: 7691, 8101, 9531, 9544

Cases:

Where civil service commission exceeded its authority by imposing a 202-day suspension against an employee, the employee was entitled to back pay. *Stovall v. Civil Service Commission,* 636 S.W. 2d 364 (Mo. App. 1982).

This section provides for an administrative remedy which must be exhausted before resorting to courts. *State v. Scearce,* 303 S.W. 2d 175 (1957): *Feldman v. City of St. Louis,* 338 S.W. 2d 345 (1960).

No right of appeal from the commission is accorded the director of personnel. *Scearce v. Simmons,* 294 S.W. 2d 673 (1954).

Exhaustion of administrative remedies is not a prerequisite for bringing an action under the Missouri Human Rights Act, RSMo Ch. 213. *Green v. City of St. Louis,* 870 S.W.3d 794 (Mo.banc 1994).

Where civil service rules provided that eligibility lists for promotions expired after two years, the Civil Service Commission was without authority to revive an expired list after the two year period had elapsed, notwithstanding the authority conferred by this section. *State ex rel. Stewart v. Civil Service Comm.,* 120 S.W.3d 279 (Mo.App.E.D. 2003).

(e) *Director.* To hold an examination for the position of director, whenever eligibles therefor are needed, and to certify eligibles resulting therefrom to the mayor, and also to perform all such duties with reference to that position as are assigned to the director as to all other positions in the classified service; and

(f) *Reports.* To transmit to the mayor and aldermen, with such additions and comments as it may desire to make, such annual and special reports as the director of personnel may submit for its action;

(g) *Reinstatement of employees.* To order the reinstatement without loss of pay of any employee who has been discharged, demoted, or reduced in rank or compensation for religious, racial or political reasons;

Cases:

Where civil service commission exceeded its authority by imposing a 202-day suspension against any employee, the employee was entitled to back pay. *Stovall v. Civil Service Commission,* 636 S.W. 2d 364 (Mo. App. 1982).

(h) *Limitations.* Except as provided in this section, the commission shall have no administrative powers or duties. Except as so provided, it shall have no power to direct or control any employee of the department of personnel or other employee of the city, or the action to be taken by any of them in any matter or case.

Neither the commission nor any of its members shall have power to take any action except by majority vote in meeting assembled.

City Counselor Ops.: 9531

Section 8 Director of personnel—Appointment; qualifications; compensation.

The director of personnel shall be appointed by the mayor from a certification of eligibles made by the civil service commission from an eligible list established by means of competitive tests of fitness conducted by the civil service commission, within thirty (30) days after such certification. One of the three eligibles standing highest on such certification who have indicated their willingness to accept appointment shall be appointed by the mayor. The commission shall secure such information and assistance as may be practicable in formulating the fitness tests for director and rating the results, from persons experienced in public personnel administration. Any person to become eligible for appointment as director shall have had not less than five (5) years' experience in personnel administration, of which not less than two years shall have been in public personnel administration, and shall be conversant with the principles and techniques of modern public personnel administration; he need not be at the time of examination or appointment, a resident of the City of St. Louis. All action under this section shall be subject to the other provisions of this article and the rules adopted in pursuance thereof, so far as consistent with this section. The commission shall fix the initial salary of the director at not less than six thousand ($6,000) dollars a year to be in effect until a compensation plan is adopted hereunder. Thereafter the salary of the director shall conform to such compensation plan.

City Counselor Ops.: 8494

Cases:

Although the director need not be a resident of the city when appointed, he must be a Missouri resident. *Kirby v. Nolte,* 164 S.W. 2d 1 (1942).

Section 9 Director's powers and duties generally; removal from office.

The director shall be the head of the department of personnel, responsible for the conduct of all of its affairs except as to such powers and duties as are vested in the commission by this article. He shall have power and it shall be his duty, in person or through the department of personnel:

City Counselor Ops.: 8494, 9771

Cases:

The director is empowered to make administrative decisions which do not include decisions contrary to ordinances enacted by the board of aldermen. *Sanders v. City of St. Louis,* 303 S.W. 2d 925 (1957). A standard set by the director that firemen have natural teeth may be held unreasonable by the court. *Mahon v. Scearce,* 228 S.W. 2d 384 (1950).

(a) *Secretary of commission.* To serve as secretary of the commission, to see to the keeping of the minutes and records thereof, to conduct investigations and prepare reports for the commission in matters under its consideration, and in all other proper ways to facilitate the actions and proceedings of the commission;

City Counselor Ops.: 9531

(b) *Appointment of employees; administration.* To appoint all employees of the department of personnel except the director and the members of the commission, and to direct and control their work and, under customary financial procedures of the city, the expenditures from appropriations for the department;

City Counselor Ops.: 9548

(c) *Roster of employees.* To establish and maintain a roster of all city employees showing the salient facts of the employment history of each employee;

(d) *Preparation of rules.* To prepare and recommend, for action by the commission, rules, including a classification plan and a service rating plan, drafts of ordinances for recommendation to the mayor and aldermen in matters requiring such ordinances, including a compensation plan, and changes as deemed desirable from time to time in such rules and ordinances;

City Counselor Ops.: 9544

(e) *Classification of positions.* To allocate each position in the classified service to its appropriate class in the classification plan adopted under the provisions of this article, and reallocate positions as conditions warrant, from class to class;

City Counselor Ops.: 9544

(f) *Definitions of classes and grades.* To prepare and maintain appropriate definitions of classes and grades in the classification plan and amend them from time to time as he may deem such action warranted;

City Counselor Ops.: 9544

(g) *Eligible lists.* To hold examinations, pass upon the qualifications of applicants, and establish eligible lists, as needed, and to certify names of eligibles to appointing authorities for filling vacancies in competitive positions;

Cases:

It was beyond the director's authority to require firemen to have natural teeth. *Mahon v. Scearce,* 228 S.W. 2d 384 (1950).

Nothing in civil service or personnel department rules and

regulations compels the appointment any person by an appointing authority. The discretion to fill or not to fill any particular position remains vested in the appointing authority. By providing that the eligibles list becomes null and void if no selection is made within the authorized period, the rules clearly contemplated that there will be situations in which the appointing authority will choose, for budgetary, management or other reasons, not to fill a given position. In that event, the position simply remains vacant. To fill the position, the appointing authority must re-institute the process by requesting a new list. *State ex rel. Killingsworth v. George*, 168 S.W.3d 621 (Mo.App.E.D. 2005).

(h) *Employee programs.* To cooperate with appointing officers and others in providing programs of training for employes, for employee welfare, for promoting of employee morale, and for otherwise raising of standards of performance in the service in every practicable way;

(i) *Employment transactions.* To pass upon, for compliance with the provisions of the charter and ordinances and these rules, and approve or disapprove as to compliance therewith, all appointments, demotions, transfers, promotions, service ratings, leaves of absence, changes in rates of pay, suspensions, separations, and other employment transactions affecting the status of employes;

City Counselor Ops.: 9531

(j) *Investigations.* To make such investigations as he may deem desirable with respect to the enforcement and effect of the personnel provisions of the charter and ordinances and of the rules, and such special investigations as the commission or the mayor may request and make special reports relative thereto;

City Counselor Ops.: 8877, 9531

(k) *Compensation plan.* To devise and recommend to the commission a compensation plan consisting of scales of pay for the several grades or classes in due relation to each other and to rates prevailing for like employment in private industry, rules for the interpretation and application of the plan, and changes in such plan and rules from time to time as deemed desirable;

Cases:

City charter provision limiting salaries of city employees and officials to $25,000 did not violate the equal protection clause of the Fourteenth Amendment. *Bruce v. Scearce,* 390 F.Supp. 297 (1975).

(l) *Administrative regulations.* To make such administrative regulations as he may deem necessary, not inconsistent with the charter, ordinances applicable, and these rules, relative to matters involved in the administration of the personnel provisions of such charter, ordinances, and rules;

Cases:

The discretion conferred upon division-level appointing authorities under civil service rules does not supersede the mayor's chief executive authority under article VII § 1 of the City charter, and the authority of the director of public safety as the fire chief's immediate supervisor under article XIII of the charter, to direct the fire chief to perform his duty to fill vacancies in the fire department. The fire chief was properly demoted for refusing the order. *George v. Civil Service Comm.,* 318 S.W.3d 266 (Mo.App.E.D. 2010).

Police division rule regarding procedure to decertify a union as collective bargaining representative, adopted prior to City control of police division, was not contrary to the City Charter. Director of Personnel regulations, which were silent on the decertification issue, did not conflict with the pre-existing police division rule, which was enforceable. *St. Louis Police Leadership Org. v. City of St. Louis,* 484 S.W.3d 882 (Mo.Ct.App.E.D. 2016).

(m) *Reports.* To make annual reports to the commission for its approval and transmission to the mayor and aldermen on the work of the department and the administration and effect of this article, with such recommendations for action as he may deem desirable, and such special reports as may be requested by the commission or the mayor. Such reports shall be public records;

(n) *Nonessential positions.* To aid the mayor and aldermen, and the several appointing officers, in determining the numbers and kinds of positions needed to carry on the city's business and in discovering and labeling unnecessary positions in order that they may be designated as supernumerary, so that they may be eliminated as opportunity affords for transfer of the employees to other positions, under the provisions of this article, and so that, as they become vacant, steps may be taken to keep them from being filled;

(o) *Assistance to appointing authorities.* To aid the mayor and aldermen, and appointing authorities in all practicable ways in handling other personnel matters relating to positions under their jurisdictions; and

(p) *Additional powers and duties.* To do all other and further things necessary or proper for making effective the provisions of this article and all rules and ordinances adopted in pursuance thereof, and not inconsistent therewith, whether of the same kinds as those specified in this section, or of different kinds. The power of the director to make effective the provisions of this article and of ordinances shall not be deemed to

be contingent on the adoption of rules but, in the absence of rules that are applicable, he shall have power to take such action, not inconsistent with this article or with ordinances pursuant thereto, as may be reasonably necessary and proper to effectuate the purposes thereof.

(q) The personnel director may be removed from office only upon charges of nonfeasance, malfeasance, or misfeasance in office and after a public hearing to be held not less than ten days after notice to the director accompanied by a statement in writing of the specific acts charged. The personnel director may be represented by an attorney and shall be entitled to present witnesses in his defense. The public hearing shall be conducted by the civil service commission. At the conclusion of the hearing, the commission shall recommend to the mayor whether or not the personnel director shall be removed from office. The mayor shall have the power to accept or reject the recommendation of the civil service commission and his decision shall be final.

City Counselor Ops.: 8877

Section 10 Selection of examiners and assistants; qualifications of employees.

The director of personnel may select suitable persons in the service of the city, with the consent of the appointing authorities, under whom such persons serve, to act as examiners under his direction or otherwise to assist in the administration of this article and the rules and ordinances adopted thereunder. It shall be deemed part of the official duties of all employees so selected, to render such services without extra compensation therefor and in addition to other qualifications required by this charter, all officers and employes, except day laborers, and except in such cases requiring scientific, mechanical, professional, or educational qualifications as may be determined by the civil service commission, must have resided in the city for at least one year and failing or ceasing so to reside, shall forfeit their office or employment.

City Counselor Ops.: 8014, 8185, 8234, 8368, 8602, 9059, 10080, 10345, 10452, 10477, 10510

Section 11 Offices and facilities to be provided; unauthorized compensation.

It shall be the duty of all employees of the city to allow the reasonable use of public buildings, and to heat and light them as conditions may require, for holding examinations, and in all other proper ways to facilitate the holding of such examinations. All employees of the city shall grant the director of personnel and any agent authorized by him free access to the premises, and the records relating to employes, under their control, during the usual business hours, and shall furnish them such facilities, assistance, and information as may be required in carrying into effect the provisions of this article and the rules and ordinances adopted thereunder. After notice to the comptroller by the director that any person is employed or is proposed to be paid as an employee in the classified service in any amount not provided for under the provisions of this article and any rules and ordinances in effect not inconsistent therewith, the comptroller shall be charged with notice thereof and shall not approve any further payment to such person except in accordance with such provisions.

City Counselor Ops.: 8617

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 12 Status of persons employed by city when article takes effect.

Every person who, when this article takes effect, is legally occupying, by regular appointment thereto, a position placed by this article in the classified service, shall be entitled to continue to occupy such position, without further examination for such employment, and shall become subject to the provisions of this article, including the provisions relating to service rating, with the same effect as though he had been appointed to the position occupied, under the provisions of this article. The provisions of this section also shall apply to all persons who, on the date of acquisition of any public utility hereafter acquired by the city, are regularly employed by such utility.

Cases:

An employee who was transferred to a higher position temporarily was legally employed and therefore a permanent employee. *Feuchter v. City of St. Louis,* 357 Mo. 616, 210 S.W. 2d 21 (1948).

Persons appointed after this article took effect were not exempt from further examination. *Bokern v. Sceare,* 237 Mo. App. 526, 174 S.W. 2d 355 (1943).

Section 13 Liability of officers and sureties for payment of unauthorized compensation.

No claim of any person appointed or employed contrary to the provisions of this article or the rules

and ordinances thereunder, whose payroll or account is refused approval or payment, shall be paid by the city, but the officer or officers appointing or employing, or attempting to appoint or employ any such person, and the sureties on his or their official bonds, shall be liable jointly and severally for the amount due to such person by reason of such employment or purported employment. No officer, during the time of his official service or thereafter, or his surety, or other person on behalf of either, shall be reimbursed by the city for any sum so paid or recovered. The city counselor, or special counsel designated therefor by the board of aldermen, shall prosecute such actions as may be necessary to recover any sums paid contrary to the provisions of this article from any officer or officers making the appointment or continuing the employment on which such payment was based, in contravention of the provisions of this article or of the rules and ordinances made in pursuance thereof, or any officer signing or countersigning or authorizing the signing or countersigning of any order or warrant for payment, or making any payment, therefor, or from the sureties of any such officer or officers on their official bonds.

City Counselor Ops.: 8080, 9727

Cases:

This section is penal in nature and must be strictly construed. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

This section is construed as referring only to intentional or negligent wrongful appointment of an employee. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

Section 14 Examinations for licenses.

The department of personnel, by agreement with any other department or other agency of the city government, may conduct examinations to determine the qualifications of applicants for licenses issued by such department or other agency, and certify the results thereof, subject to reimbursement of the reasonable costs of such service by transfer from the appropriations of the agency served to those of the department of personnel.

City Counselor Ops.: 8368

Cases:

The function of giving examinations required by ordinance as a condition for receiving a license may be delegated to the department of personnel. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

Section 15 Unlawful conduct relating to examinations.

No person shall willfully, by himself or in cooperation with any other, defeat, deceive or obstruct any person in respect to his rights in relation to any tests of fitness or appointment to any position under the provisions of this article, and any rules or ordinances made thereunder, or shall willfully and falsely mark, grade, estimate or report upon the tests of fitness or proper standing of any person tested or certified pursuant to the provisions of this article or the service ratings of any employe, or aid in so doing, or shall willfully make any false representation concerning the same, or concerning any person tested, or shall willfully furnish to any person any special or secret information for the purpose of either improving or injuring the prospect or chances of any person in connection with any test or appointment, or shall impersonate any other person or permit or aid in any manner any other person to impersonate him, in connection with any test or appointment, or application or request to be examined.

Section 16 Racial, political and religious discrimination forbidden.

No recommendation or question under the authority of this article shall relate to the race, political or religious opinions, affiliations or service, of any person. No person shall be appointed to a position in the classified service hereunder, nor be demoted, re-employed, promoted, removed, increased or reduced in compensation, nor in any other way be favored or discriminated against in any matter within the purview of this article, because of his race, political or religious opinions, affiliations or service.

Cases:

The limitations in this subsection do not prevent the application of a state-established nondiscrimination policy. *City of St. Louis v. Missouri Commission on Human Rights,* 517 S.W. 2d 65 (1974).

History:

Submission Ordinance No. 43548

Submission Ordinance Approved April 8, 1946.

Amendment Substance: by repealing Section 16, and enacting a new section simplifying language prohibiting political considerations and activities, and broadening section to include prohibitions against discriminations in the classified service based on race, political or religious opinions, affiliations or service.

Voter Adoption Date: August 6, 1946.

Section 17 Political assessments and contributions.

No person in the classified service shall be under any obligation to contribute to any political fund or to render any political service, and no such person shall do so or be removed or otherwise prejudiced for refusing

to do so. No person in the city service shall discharge or promote or reduce, or in any manner change the official rank or compensation of any other person in such service, or promise or threaten so to do, for withholding or refusing to make any contribution of money or service or any other valuable thing for any political purpose, or in any other manner, directly or indirectly, use his official authority or influence to compel or induce any other person to pay or render any political assessment, subscription, contribution, or service. Every such person who may have charge or control of any building, office or room occupied for any purpose of the government of the city, is hereby authorized to prohibit the entry of any person, and he shall not knowingly permit the entry of any person, for the purpose of therein making, collecting, receiving, or giving notice of, any political assessment, subscription or contribution; and no person shall enter or remain in any such office, building, or room, or send or direct any letter or other writing thereto, for the purpose of giving notice of, demanding, or collecting a political assessment, subscription, or contribution, nor shall any person therein give notice of, demand, collect, or receive any such assessment, subscription, or contribution; no person shall prepare or make out, or take any part in preparing or making out, any political assessment, subscription, or contribution with the intent that it shall be sent or presented to or collected from any employee in the classified service, and no person shall knowingly send or present any political assessment, subscription, or contribution to, or request its payment of, any such employe.

City Counselor Ops.: 8236, 8426

Cases:

The application of the restrictions in this section to classified employees only does not violate the equal protection clause since it serves the legitimate goal of increasing efficiency in public service. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

Section 18 Promises of official influence to affect political action.

No person, while holding any city office, or while in nomination or seeking nomination to appointment to any such office, shall corruptly use or promise to use, directly or indirectly, any official authority or influence, possessed or anticipated, to confer upon any person, or to secure or aid any person in securing, any office or public employment, or any nomination, confirmation, promotion, or increase of salary, upon the consideration or condition that the vote or political influence or action of any person shall be given or used in behalf of any candidate, officer, or party, or upon any other corrupt condition or consideration. No person, being an officer of the city, or having or claiming any such authority or influence, in relation to the nomination, employment, confirmation, promotion, removal or increase or decrease of salary, of any employe, shall corruptly use, or promise or threaten to use, any such authority or influence, directly or indirectly, to coerce or persuade the vote or political action of any person, or the removal, discharge, or promotion of any employee of the city.

City Counselor Ops.: 8426, 10095

Section 19 Political activity of classified employes.

No person holding a position in the classified service shall use his official authority or influence to coerce the political action of any person or body, or to interfere with any election, or shall take an active part in a political campaign, or shall seek or accept nomination, election, or appointment as an officer of a political club or organization, or serve as a member of a committee of any such club or organization, or circulate or seek signatures to any petition provided for by any primary or election law, or act as a worker at the polls, or distribute badges, color, or indicia favoring or opposing a candidate for election or nomination to a public office, whether federal, state, county, or municipal. But nothing in this section shall be construed to prohibit or prevent any such person from becoming or continuing to be a member of a political club or organization or from attendance upon political meetings, from enjoying entire freedom from all interference in casting his vote, from expressing privately his opinions on all political questions, or from seeking or accepting election or appointment to public office, provided, however, that no active campaign for election shall be conducted by any employee unless he shall first resign from his position.

City Counselor Ops.: 8118, 8426, 8876, 9376, 9825, 10384

Cases:

The application of the restrictions in this section to classified employees only does not violate the equal protection clause since it serves the legitimate goal of increasing efficiency in public service. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

A finding that the city's fire department Battalion Chief violated Section 19 of Amended Article XVIII of the city Charter was unsupported in the absence of any evidence

that the Battalion Chief used his authority or influence as Battalion chief to coerce someone to political activity. *Blackwell v. City of St. Louis,* 726 S.W. 2d 760 (1987).

It is beyond debate that federal, state and local governments may place some restrictions of the political conduct of public employees. The goal is to balance the interest of the employee as a citizen, in exercising first amendment rights, and the interest of the government, as an employer, in promoting the efficiency and impartiality of public services. *Blackwell v. City of St. Louis,* 726 S.W. 2d 760 (1987).

The charter's limitations on political activity by classified service employees is constitutional, and an employee was properly discharged for forwarding to other employees an e-mail attachment advocating for a candidate for mayor. *Wilson v. City of St. Louis,* 418 S.W.3d 501 (Mo.App.E.D. 2013).

Section 20 Leave to be granted for purpose of voting.

On any election day which is not a state or national holiday, the offices of the city shall remain open for business. All employees shall be entitled to vote and whenever necessary may be granted not more than four hours' leave with pay for the purpose of voting.

Cases:

For this section to conform with state statutes the words "not more than" have no effect. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

Section 21 False statements under oath.

No person knowingly and willfully shall make under oath any false statement in any application or other statement filed with, or in any proceeding before, the director of personnel, or the civil service commission, or in any investigation conducted by the director or the commission.

Section 22 Penalties for violation.

Any person who shall willfully or through culpable negligence violate or conspire to violate any provision of this article or of any ordinance made pursuant theretofore which no other punishment is provided herein, shall be guilty of a misdemeanor, and, upon conviction thereof in any court of competent jurisdiction, shall be punished by a fine of not less than one hundred dollars and not more than five hundred dollars or by imprisonment for not to exceed six months, or both, in the discretion of the court. The conviction of any employee of any such offense shall operate automatically to terminate his service and to vacate his position. Any employee so removed from the service shall not be reinstated, reemployed or reappointed, or in any other manner re-enter the service of the City of St. Louis for a period of five years from the date of such conviction, and the comptroller and any other fiscal officers responsible for payment of any compensation to such person are hereby charged with notice thereof. Nothing in this section shall be construed to supplant or in any way affect any prosecution that may be elected to be initiated under any other provision of law relating to the nonfeasance, malfeasance, or misfeasance of public officers.

Cases:

An employee need not be convicted under this section to be validly dismissed. *Fleming v. Holland,* 260 S.W. 2d 840 (1943).

Section 23 Compliance with article and civil service rules.

It shall be the duty of all employees to conform to and comply with, and to aid in all proper ways in carrying into effect, the provisions of this article, and the rules and ordinances prescribed thereunder. Whenever the director of personnel shall make any order under the provisions of this article or in accordance with any rules or ordinance thereunder, the employee to whom such order is directed shall forthwith comply with the terms and provisions thereof, and any failure or neglect on the part of such employee properly to satisfy or meet the requirements of such order without sufficient justification therefor, shall be construed as grounds for his removal, subject to all rights of appeal and review provided by this article or by ordinance or law.

City Counselor Ops.: 8617

Section 24 Legal remedies for payment of unauthorized compensation.

The city counselor, or special counselor designated therefor by the board of aldermen, on complaint of any officer or employee of the city or of any taxpayer, shall prosecute, and of his own motion may prosecute, such action as may be appropriate to restrain the payment of salary or other compensation to any person appointed to or holding any position in violation of any of the provisions of this article or the rules and ordinances thereunder, or to recover any payment so made, and such right shall not be limited or denied by reason of the fact that such position shall have been classified as, or determined to be, not subject to competitive tests.

All money recovered in any action brought under the provisions of this section shall, when collected, be paid into the treasury of the city.

Section 25 Investigatory powers of director; payment of witnesses.

In the course of any hearing, investigation, or tests of fitness conducted under the provisions of this article, the director of personnel and any other person authorized by him as his representative for such purposes, shall have power to administer oaths, to subpoena and require the attendance of witnesses within the city and the production by them of books and papers pertinent to any matter of inquiry and to examine such witnesses under oath, in relation to any matter properly involved in such proceeding. For such purposes, the director or his authorized representative may invoke the power of any court of record in the city, or judge thereof, in term time or vacation, to compel the attendance and testifying of witnesses and the production of books and papers in compliance with such subpoenas. All witnesses so subpoenaed, who are not employees of the city, shall be entitled to the same fees as are allowed in civil cases in courts of record, which shall be paid upon vouchers approved by the director of personnel from the appropriations of the department of personnel on the audit and warrant of the comptroller.

City Counselor Ops.: 9531

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 26 Effect of established titles and rates of pay.

The titles and rates of pay of any positions in the classified service, as set forth in any ordinance or appropriation now or hereafter in effect, shall be deemed to be permissive only, authorizing positions that might properly be designated by such titles and compensated at such rates if so constituted that such titles and rates would apply under the provisions of this article, but not as mandatory in requiring that such titles shall be used to designate such positions to the exclusion of all others or that payments shall be made at such rates, irrespective of the true nature of the positions existing by virtue of such authority and of whether such titles and rates are appropriate to the positions as actually constituted.

Section 27 Partial invalidity of provisions.

If any part of this amendment is held by competent authority to be invalid, every other part thereof not so held, shall continue in full force and effect as though such invalid part had not been included therein.

Section 28 Repeal of inconsistent provisions.

All provisions of the city charter and ordinances and rules thereunder, or parts thereof, inconsistent with this amendment, are hereby repealed.

Cases:

When there has been no repeal in specific terms, a former provision will not be repealed unless the two are irreconcilable. *Simmons v. City of St. Louis,* 264 S.W. 2d 928 (1954).

Section 29 Powers and duties of efficiency board vested in personnel board.

All powers and duties delegated to the efficiency board by this charter which are not specifically repealed by this amendment are preserved in full force and effect to the personnel department.

Section 30 Effective date.

This amendment shall take effect immediately, except that payrolls may be certified and payments be made thereon, under the provisions of previously existing charter provisions, and ordinances and rules, applicable thereto, during such temporary period not to exceed one year as is necessary, in the opinion of the civil service commission, to provide for the director of personnel, the rules, the classification and compensation plans, the ordinances, the allocation of the existing positions to their appropriate classes and the fixing of the rates of compensation thereunder, and the forms and procedures, necessary for full compliance with the provisions of this article.

Cases:

A charter amendment can provide that it shall be effective when adopted. *State v. Kirby,* 349 Mo. 988, 163 S.W. 2d 990 (1942).

As far as the right to appeal to the commission is concerned, the amendment became effective when adopted. *State v. Hertenstein,* 349 Mo. 1010, 163 S.W. 2d 963 (1942).

Section 31 Fire department.

(a) Notwithstanding any other provisions of this charter or ordinances of the City of St. Louis to the

contrary or in conflict herewith, the following designated ranks and positions of members and employees of the fire department of the City of St. Louis shall for the purposes of compensating said members and employees of said fire department by salaries for their duties be equivalent to and correspond with the ranks and positions of officers of the police force of the City of St. Louis hereinafter set forth beside each respectively, and the salaries of said designated ranks and positions of members of the fire department of the City of St. Louis shall from and after the effective date of this section and thereafter not be less than the salaries provided by law for the said equivalent and corresponding ranks and positions of officers of the police force of the City of St. Louis, set forth beside each respectively:

Fire Department Rank or Position	*Police Force Rank or Position*
Fire Chief	Chief of Police
Deputy Fire Chief	Lieutenant Colonel, other than Assistant Chief of Police
Battalion Fire Chief	Major
Fire Captain	Lieutenant
Fire Equipment Dispatcher III	Lieutenant
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than twenty years in the Fire Department	Patrolman who has served more than twenty years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than fifteen years in the Fire Department	Patrolman who has served more than fifteen years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than ten years in the Fire Department	Patrolman who has served more than ten years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than five years in the Fire Department	Patrolman who has served more than five years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than four years in the Fire Department	Patrolman who has served more than four years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than three years in the Fire Department	Patrolman who has served more than three years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than two years in the Fire Department	Patrolman who has served more than two years as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who has served more than one year in the Fire Department	Patrolman who has served more than one year as a patrolman
Fire Fighter, Fire Equipment Dispatcher I and II and Fire Prevention Inspector who is serving in his first year in the Fire Department	Patrolman who is beginning his first year as a patrolman

(b) All provisions of the city charter and ordinances and rules thereunder or parts thereof, inconsistent with this amendment are hereby repealed.

City Counselor Ops.: 10346

Cases:

This section is not invalid as an improper delegation of legislative responsibility and does not violate any constitutional requirement relative to separation of powers. *State ex rel. St. Louis Fire Fighters Association Local No. 73 v. Stemmler,* 479 S.W. 2d 456 (1972).

This section, insofar as it prescribes minimum compensation, is self-enforcing. *State ex rel. St. Louis Fire Fighters Association Local No. 73 v. Stemmler,* 479 S.W. 2d 456 (1972).

A proposed amendment to a city charter pursuant to an initiative petition requiring salaries of the city fire department to be not less than salaries received by members of another city's fire department was unconstitutional. *State ex rel. Card v. Kaufman,* 517 S.W. 2d 78 (1974).

Firemen's salaries may be above the maximum set by

article VIII of this charter. *Bruce v. Scearce,* 390 F.Supp. 297 (1975).

Only remuneration which is "salary" is within the ambit of the section; other forms of compensation received by members of the police department are not, by virtue of this section, automatically owed to corresponding members of the fire department. *St. Louis Fire Fighters Assoc. v. City of St. Louis,* 637 S.W. 2d 128 (Mo. App. 1982).

An eight percent raise in pay in lieu of compensatory time off or payments for overtime hours for certain ranks of police officers constituted a raise in salary which, by virtue of this section, required an eight percent raise in salary for the corresponding ranks in the fire department. *St. Louis Fire Fighters Assoc. v. City of St. Louis,* 637 S.W. 2d 128 (Mo. App. 1982).

An allowance for policemen who work in nonuniform clothes, a "shift differential" for policemen who work evenings and nights, and additional compensation for policemen who complete accredited college work were not "salary" compensation and were not, by virtue of this section, automatically owed to corresponding members of the fire department. *St. Louis Fire Fighters Assoc. v. City of St. Louis,* 637 S.W. 2d 128 (Mo. App. 1982).

History:

Submission Ordinance No. 55656

Submission Ordinance passed over veto June 26, 1970.

Amendment Substance: amendment of Article XVIII, as amended, by enacting a new Section 31, establishing parity of compensation of City Fire Department salaries with those of the police force of the City; and detailing equivalent ranks of the two services.

Voter Adoption Date: September 15, 1970.

Article XIX

FRANCHISES

Cases:

An agreement between the city and a corporation granting the corporation the exclusive use of a municipal dock for a maximum of twenty years was properly termed a lease agreement as distinguished from a franchise and constituted a valid and binding contract. *St. Louis Terminals v. City of St. Louis,* 535 S.W. 2d 593 (1976).

Section 1 Limitations on grant; powers reserved to city; ordinances required; incidental regulations.

All grants or renewals of franchises shall be subject to the right to amend, alter or repeal the same in whole or in part, and to forfeit the same at any time for misuse or nonuse; and subject always to the city's power of taxation and its authority to regulate rates, quality of use, service, and products and methods of conduct and operation; subject also to the right of the city at the end of ten years after the beginning of operation and at the end of every five-year period thereafter, at its option to be exercised by ordinance, to acquire the plant and property used in the operation of the franchise, upon terms and conditions to be ascertained in the manner provided in the granting or renewing ordinance, but in no event is the franchise itself to enter as an element into such compensation. Upon such acquisition the franchise shall cease. Every such grant shall cease unless construction thereunder is begun within the time specified in the ordinance and completed with reasonable speed, and no grant shall be exclusive or for a longer term than fifty years.

Any ordinance granting or renewing a franchise may also provide for regulating, from time to time, the amount of capitalization, indebtedness and expenditure of the grantee or assignee in operating thereunder. Such ordinance may also provide that the franchise shall be sold at public sale, and nothing in any such ordinance shall prevent the city from acquiring the property of any such utility by condemnation proceedings or in any other lawful way subject to the limitation of time herein provided.

Every grantee of a franchise for any public utility shall keep such reports of its finances and operation as may be prescribed by ordinance, and the city may at any time examine its records and accounts.

No ordinance granting or renewing a franchise shall be adopted until a report thereon in the form in which it is put upon its adoption has been made to the board of aldermen by the board of public service with its recommendations as to the action that should be had thereon, nor until the bill and the report of the board of public service, or a fair summary thereof, shall have been published as provided by ordinance.

No franchise shall be assignable except with the city's approval expressed by ordinance.

RSMo:

RSMo 82.230 (2016) Regulation of public franchises

City Counselor Ops.: 9884

Cases:

A franchise is contractual in nature and is subject to termination for non-performance or nonuser, which is distinct from abandonment. Abandonment signifies that the franchisee exercised rights and subsequently discontinued use. Nonuser signifies that the franchisee never utilitized the franchise. *State ex. inf. Peach ex rel. City of St. Louis v. Melhar Corp.,* 650 S.W.2d 633 (Mo.App.E.D. 1983)

Public utility company must obtain consent to put electric

wires over city streets. *Holland Realty and Power Co. v. City of St. Louis,* 282 Mo. 180, 221 S.W. 51 (1920).

Contract for possession and profit of dock constituted a "lease" and not a "franchise." *St. Louis Terminals v. City of St. Louis,* 535 S.W. 2d 593 (1976).

McQuillin:

Ch. 34 Franchises

Section 2 Control of public utilities.

The board of aldermen shall at all times have full power, to be exercised by ordinance, over all public utilities now or hereafter existing in the city, and may regulate the charges for the use, service or product thereof and establish whatever requirements may be necessary to secure efficient use, service or products, and no terms or conditions contained in any grant shall limit or impair this power.

Cases:

This section is inoperative insofar as state statute has provided a uniform system of regulation for public utilities. *State v. Public Service Commission,* 270 Mo. 429, 192 S.W. 958 (1917).

The city cannot enact penal ordinances pertaining to use of public utilities that are under state control. *Ex parte Packman,* 317 Mo. 732, 296 S.W. 366 (1927).

Section 3 Conditions of grant or renewal.

The board of aldermen shall, in the granting or renewal of any franchise as herein provided, prescribe or provide for the character of construction and equipment; the kind and quality of use, service or product to be furnished; the rate to be charged therefor; manner in which the streets, public grounds or other public property shall be used or occupied; and any other terms and conditions in the interest of the public, including, among others, provision for compensation to the city for the use of such streets, public grounds or property based on a share in the gross or net receipts or on the number of passengers transported or number of cars owned or operated or on any one or more of such bases or any other basis or bases.

Section 4 Maintenance of streets by street railroads.

Street railroad companies shall keep the street between the rails and between the tracks and to the extent of at least twelve inches outside of each rail in perfect repair, and as nearly on a level with such rails as practicable, and that portion outside the rails shall be of the same material as the street itself or such other material as may be approved by the board of public service, and give such bond or other security for compliance with the provisions of this section as may be provided by ordinance.

Cases:

Street railroad companies are liable to private persons for injuries caused by noncompliance with this subsection. *Asmus v. United Rys. Co. of St. Louis,* 152 Mo. App. 521, 134 S.W. 2d 92 (1911); *Corte v. St. Louis Public Service Company,* 370 S.W. 2d 297 (1963).

Railroad is not responsible for any injury after city took over service even if injury was caused by defect present prior to railroad's abandonment. *Vanaak v. St. Louis Public Service Company,* 358 S.W. 2d 808 (1962).

Section 5 Use of tracks of one street railroad by another.

Any street railroad company shall have the right to run its cars over the track of any other street railroad company in whole or in part, upon the payment of just compensation for the use thereof, under such rules and regulations as may be provided by ordinance.

Article XX

LICENSES TAXES

RSMo:

RSMo 71.610 et seq. (2016) Taxing powers

City Counselor Ops.: 8249, 8646, 9907, 10312

Cases:

A fee of one dollar was a license fee not a license tax. *Ex parte Smith,* 231 Mo. 111, 132 S.W. 607 (1910).

City may require a license tax on motor vehicles but cannot require a display of identification that conflicts with state law. *City of St. Louis v. Williams,* 235 Mo. 503, 139 S.W. 340 (1911).

The city may not tax certain public utilities that are under state control. *Union Electric Light and Power Co. v. City of St. Louis,* 253 Mo. 592, 161 S.W. 1166 (1913).

The part of an ordinance imposing a license tax is separable from the invalid portion specifying tire widths. *City of St. Louis v. St. Louis Transfer Co.,* 256 Mo. 476, 165 S.W. 1077 (1914).

City may validly impose license tax on street railways based upon number of paying passengers. *City of St. Louis v. United Rys. Co. of St. Louis,* 263 Mo. 387, 174 S.W. 78 (1915).

A merchant's license fee cannot be based on sales in interstate commerce. *State v. Chapman,* 318 Mo. 99, 300 S.W. 1076 (1927).

City cannot impose license tax on business that was not

specifically mentioned. *Keane v. Strodtman,* 323 Mo. 161, 18 S.W. 2d 896 (1919).

A license tax on slot machines is valid. *Edmonds v. City of St. Louis,* 348 Mo. 1063, 156 S.W. 2d 619 (1941).

The city may impose a license tax on public movers. *Ex parte Lockhart,* 350 Mo. 1220, 171 S.W. 2d 660 (1943).

An "earnings tax" is not a license tax but a type of "income tax" or "excise tax." *Carter Carburetor Corporation v. City of St. Louis,* 356 Mo. 646, 203 S.W. 2d 438 (1947).

City may levy a license tax on taxicabs. *Ex parte Tarling,* 241 S.W. 929 (1922).

The city does not relinquish the right to collect license taxes because it also levies a use tax. *St. Louis v. United Railways Co.,* 210 U.S. 266 (1908).

Since telegraphs are instruments of interstate commerce they are not subject to a license tax. *City of St. Louis v. Western Union Tel Co.,* 39 F. 59 (1889).

This article is broad enough to include gas companies operating as public utilities and public service companies operating as private enterprises. *City of St. Louis v. Mississippi River Fuel Corp.,* 57 F.Supp. 549 (1944).

Ordinance 51288 on the licensing and regulation of wreckers or tow trucks was held to be a valid regulation under the city's police power against the contention that it served more as a revenue tax than a regulatory license, was unnecessary to protect the public health, safety and welfare, established an unreasonable classification, and constituted an impermissible burden on interstate commerce. *Kunz v. City of St. Louis,* 602 S.W. 2d 742 (1980).

McQuillin:

26.32—26.42a Charges, Taxes and Fees

History:

Submission Ordinance No. 49996

Submission Ordinance Approved April 11, 1960.

Amendment Substance: repeal of Article XX and enacting a new Article XX specifying with particularity the subjects of City license taxation (Section 1), making each branch or separate place of doing business taxable (Section 2), and requiring uniformity in taxing of a class (Section 3).

Voter Rejection Date: November 8, 1960.

Submission Ordinance No. 50165

Submission Ordinance Approved January 27, 1961.

Amendment Substance: repeal Article XX and enact a new Article XX specifying with particularity the subjects of City license taxation (Section 1), making each branch or separate place of doing business taxable (Section 2), and requiring uniformity in taxing of a class (Section 3).

Voter Adoption Date: April 4, 1961.

Section 1 Subjects of taxation.

License taxes may be imposed by ordinance upon the following business avocations, pursuits, callings, animals, or things, and upon agents, agencies, brokers, contractors, or subcontractors connected therewith; and upon any sale, rental, leasing, hiring, or services rendered in connection with any of the subjects, objects, or classifications thereof hereinafter enumerated:

abstractors, certifiers, or guarantors of land titles; accountants; acetylene gas; accounting machines; acides; acoustical supplies; addressing businesses; adjusters of claims; advertising advisors, composers, or writers; advertising of any kind or by any means; aerial surveying; air compressors; air conditioning equipment or systems; aircraft; aircraft transportation; airports or airstations; alleys; aluminum products; ambulances; amusement devices; amusement parks; amusement ticket brokers or sellers; animal shows; antique dealers; appraisers; apron supply; aquariums; architects; arenas; armature rewinding; art galleries; art glass; artists; asphalt work; assayers; athletic, boxing, sparring, or wrestling exhibitions of contests; auction criers; auctioneers; automobiles; automobile dealers; automobile livery; automobile shows; awnings;

baby sitter agencies; badminton or tennis courts; bail bondsmen; bankers; banks and bankers; barber or beauty shops; barge lines and terminals; baseball parks; bath houses; battery charging; beds; bees; beer depots or store rooms; beer or wine gardens or taverns; bicycles; billboards or bill posters; billiard or pool tables, or other tables or instruments used for amusement; blacksmith shops; bleaching, cleaning, dyeing, or pressing; blue print or photostat makers; board, livery, or sales stables; boarding, lodging, or rooming houses; boilers; boiler cleaning, inspecting, or setting; bond brokers; bonding or surety companies; books; bookbinding; bookkeeping; bottle exchanges; bottling plants; bowling or ball alleys; brewers or breweries; brickwork; bridges; buffing, grinding, or polishing; building; building, house, or window cleaners; building management, operation, or maintenance; building materials; building or house moving, raising, shoring, or wrecking; buildings, or savings and loan associations; building reports; burial vaults; buses; business machinery; business brokers; butane and butane appliances; buyers' agents or agencies;

cables; calculating and tabulating machines; cameras; carnivals; carpentry; carpets; carters or draymen; cash registers; caterers; caulking; cement or concrete work; cemeteries; chairs or tables; charity solicitation; chauffeurs; check cashing; check rooms; chemicals; chemists; children's nurseries; chimney cleaning; chiropodists; chiropractors; cigarettes and tobacco of all kinds;

circuses; claim agents; clairvoyants; clearing houses; clinics; clothing; coal; coin-operated dispensing machines; cold, garment, household goods, locker, lot, or merchandising storage; collectors of accounts or claims; commission merchants or agents; commodity brokers; compressed air; concerts; confections; contract haulers; contract tailors; contractor's equipment; convalescent or nursing homes; correspondence schools; cosmetics; costumes; cranes; credit associations, bureaus, or agencies; crematories; culverts; curb market merchants; customhouse brokers;

dairies; dance halls and studios; dealers or distributors of goods, wares, or merchandise; decorating; delivery of goods, baggage, or parcels; dentists; desiccating; designers; desks; detectives, detective agencies, investigators, or finders of missing persons; development companies; diapers; die cutting; dish washing machines; distillers or distilleries; docks, piers, wharves, or other landing places; dogs; dog kennels; dramshops; dredging; drilling; drivers of motor vehicles; druggists; drummers or salesmen; duplicating and duplicating machines and processes;

electricity and electric appliances; electric or compressed hammers; electrical transcription; electrical work; electrologists; electronics; electronic equipment; electroplating; embossing; enameling elevators; embalmers; employment agencies; engines; engineers, when not covered by State license; engravers; escrow service in land transfers; excavating; excursion boats; exhibitions; exporters or importers; express companies;

fans; farmers' markets; feather renovating; feed brokers; ferries or other boats; fertilizers; filling or service stations; film developing; filters; finance or loan companies; financial brokers; financing; firearms; fire escapes; fire or burglar alarm systems; florists; floor refinishing or maintenance; floor surfacing machines; flooring; fluorescent lighting maintenance; food markets; food processors; food product brokers or peddlers; foundations; freight or other forwarders; freight transfer, or other warehousing; fruit brokers or peddlers; fumigators; funeral directors; furnaces; furniture; furniture refinishing; furriers;

galvanizing; garages, garbage removers; gas and gas appliances; gasoline; gauges; gaugers; geologists; gift, premium, or trading stamp enterprises; gold refiners, or goldsmiths or silversmiths; golf courses, driving ranges, and any other golf enterprises; grading; grain brokers; grain elevators; grinding or sharpening; gunsmiths; guttering or spouting; gymnasiums, health institutes, or reducing parlors;

halls; hardware; hauling; hawkers; hucksters, or peddlers; heating; hoisting; home building; horses; horse shoers; hospitals, sanatoriums, or sanitariums; hotels; hotel or restaurant equipment;

ice; incinerators; income or other tax returns or tax services; industrial, professional, and technical instruments; information or inspection bureaus; inspectors; installation, with or without sale; insurance companies; insurance inspection bureaus; insurance, railroad and other rating bureaus; inter-communicating systems; interpreters; investment brokers; investment or trust companies; itinerant vendors, traveling, or auction stores; itinerant wholesale produce dealers;

janitor service; jewelry; job wagons; jobbers; junk dealers, merchants, or peddlers;

kalsomining; kitchen equipment;

labor or public relations counselors; laboratories; laboratory equipment; lamps; landscaping; land clearing; lathing; laundries, and self-service laundries; lawnmowers; leather goods; lenders on chattel mortgages; lifting jacks; lightning rods; linen supply; linoleum laying; linotyping; liquor; liquor dealers, wholesale or retail; lithographers; loan brokers; locksmith; lumber; lumber measurers; lunch stands, counters, or wagons;

machine shops; machinery of all kinds; machinery designing; magazines; mail order houses; mailing; manicurists; manufacturing; market places; market research; masseurs; mattress renovators; mausoleums; meat brokers; meat choppers; medical supplies; mercantile agents or agencies; merchandise brokers; merchants; merry-go-rounds; messengers; metal finishing, spraying, or stamping; microfilming; midwives; millwrighting; mimeographing; mining companies; mirror resilvering; money transportation; monuments; motels; moth proofing; motion picture projecting equipment; motors; motor scooters; motor vehicles or parts thereof; motor vehicle oiling, repossessing, steam cleaning, towing, washing, wheel aligning, or wrecks; motorcycles; moving picture exhibitions or shows; moving picture film producers, distributors, exchanges, or rental establishments; multigraphing; multilithing; museums; music arrangers or bureaus; musical instruments;

natural gas companies; navigation companies or steamboat lines; news agents, dealers, or distributors; news service or bureaus; newspapers, newspaper pub-

lishers, agents, dealers, or distributors; nuclear or atomic devices or services; numbering machines; nursery schools; nurseries or nurserymen; nursery stock; nursing service;

office buildings; office coats, overalls, towels, uniforms, or work clothes supply; office equipment; oil companies; oil cutting or reclaiming; oil, mining, or other stocks; oil or gas burners or stockers; operatic, theatrical, or other performances; opticians; orchestras or bands; organs; ornamental work; oxygen; oxygen tents; optometrists; osteopaths;

packing or slaughter houses; paint sprayers; painting; paper; paper hanging; parades; parking facilities; parking lots; passenger stations or terminals; patent right brokers; patrol, guard, or watchman services; pattern making; paving; pawnbrokers; payroll service; pension plan services; pest exterminators; pharmaceutical supplies; pharmacists; phonographs; photocopying; photograph finishing; photographers; physical therapy; physicists; pianos; pile driving; pipe bending, cleaning, cutting, or threading; pipe lines; pipes, poles, wires, or conduits of public utility companies; planographers; plants and seeds; plastering; plastics; plating; plumbing or gas fitting; pneumatic tubes; portable saws; postage stamp and coin dealers; poultry shows; power piping; power plants; prefabricated buildings; press clipping bureaus; printing establishments; printing presses; private institutions; processors; produce brokers; propane and propane appliances; public address systems; public amusements and entertainments; public carriers; public garages; public halls; public lecturers; public movers; public scales and weighers; public utilities; public vehicles; publishing companies; pumps; push carts;

quarries;

race tracks; radios; radio equipment; radio or television broadcasting stations; railroads; railroad or tank cars; railway traffic; ready-mixed concrete; real estate management; real or personal property; recording equipment; rectifiers; refineries; refrigerating companies; refrigeration or refrigeration systems; rendering plants; rentals; research bureaus; restaurants; rigging; roads; road oiling; roofing; rubber products; rugs; runners;

safes; safe depositories; salary brokers or buyers; sales counseling; sand blasting; sash metal; sashing; saws; scaffolds; scales; scalp treaters; schools and academies of art, business, dancing, dramatics, expression, language, music, and riding; scrap metal brokers; sellers' agents or agencies; selling or storing gasoline; service cars; service car drivers; sewers; sewing machines; sheet metal stamping or other work; shippers; shoes; shoe machinery; shoe shining parlors; shooting galleries; sidewalks; sidewalk markets; sightseeing tours; signs; silverware; skating rinks; slicing machines; slot machines; smelters; smoke stacks; soda fountains; soft drinks; solicitors; sport events or exhibitions; sporting good; sprinkler systems; stairs; statisticians; statuary; steam-fitting; steamships; steel brokers; steel erection; steel shearing; stock or merchants' exchanges; stock brokers; stockyards; stokers; stone work; storage houses; store or office fixtures; stoves; streets; street lighting; street railways; street railway cars; street stands; surgical instruments; surveying instruments; surveyors; swimming pools;

tailors; tanks; tanners; tape machines; tariff bureaus; tattooing; taxicabs; taxicab drivers; taxidermists; technical and trade schools or colleges; television sets or equipment; tents; terrazzo or tile work; textiles; theatre sound equipment; theatrical bookings; therapeutic devices; ticket agents; tile; tin work; tires; toll bridges or viaducts; tools; trailers; trailer or tourist camps or courts; transfer companies; translating services; transportation companies; transportation tickets; travel or traffic bureaus; trenches; trucks; truck terminals; trust companies; tube cleaning or expanding; tuck pointing; turbines; typewriters; typing or secretarial work; typographers or typesetters;

umbrellas; underwriters; upholsterers; upholstering; ushering;

vacuum cleaners; vaults; vehicles; vending machines; ventilation; veterinary hospitals; vulcanizing; veterinarians;

wall paper cleaning; washing machines; watches; watchmen; water coolers; waterproofing; water works; weather stripping; welding; welding equipment; windows; window displays; window equipment; wine manufacturers; wineries; wire products; wood workers; wreckers; and wrought iron.

City Counselor Ops.: 9084, 9686, 10305, 10471

Section 2 Tax on branch establishments.

A separate license tax may be imposed for each place of business conducted or maintained by the same person, firm or corporation.

City Counselor Ops.: 9084

Section 3 Uniform tax for each class.

Any ordinance imposing a license tax may divide and classify any subject of such taxation, and may impose a different tax upon each class, but the tax shall be uniform for each class.

City Counselor Ops.: 9084, 10305

Cases:

The word "uniform" refers to the measure gauge or rate of the tax. *508 Chestnut, Inc. v. City of St. Louis,* 389 S.W. 2d 823 (1965).

The words "the same class of subjects" refers to the classification of subjects of taxation for the purposes of the tax. *308 Chestnut, Inc. v. City of St. Louis,* 389 S.W. 2d 823 (1965).

City may validly levy a tax on the gross receipts of hotels' and motels' transient business. *508 Chestnut, Inc. v. City of St. Louis,* 389 S.W. 2d 823 (1965).

Article XXI

EMINENT DOMAIN

Constitution:

Article I § 27 Acquisition of excess property by eminent domain

Article I § 28 Limitation on taking of private property for private use

RSMo:

RSMo Ch. 88 (2016) Public works and special assessments therefor—condemnation

RSMo Ch. 523 (2016) Condemnation proceedings

RSMo 82.790 Certain cities may condemn property outside city

City Counselor Ops.: 7910, 8022, 8080, 8675, 8712, 10365 Sup.Ct.R. 86

Cases:

When the procedures in this article are followed the municipality is not required to bring subsequent suits to enforce the collection of benefit assessments. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925).

The various interests in a distinct piece of property are not valued separately. *State v. Hall,* 325 Mo. 165, 28 S.W. 2d 80 (1930).

The city cannot obtain an easement for a street crossing railroad tracks without the public service commission's order. *City of St. Louis v. St. Louis-San Francisco Ry. Co.,* 330 Mo. 499, 50 S.W. 2d 637 (1932).

Delay in condemnation proceedings does not constitute a taking of property. *State v. Beck,* 333 Mo. 1118, 63 S.W. 2d 814 (1933).

The procedural requirements of article XXII do not have to be followed in a condemnation proceeding under article XXI. *City of St. Louis v. Franklin Bank,* 351 Mo. 688, 173 S.W. 2d 837 (1943).

The expression "public work and improvement" is limited to improvements where property is taken or damaged. *City of St. Louis v. Franklin Bank,* 351 Mo. 688, 173 S.W. 2d 837 (1943).

An estimate of costs of a construction proceeding does not have to be filed before special benefits can be assessed in a condemnation proceeding. *City of St. Louis v. Franklin Bank,* 351 Mo. 688, 173 S.W. 2d 837 (1943).

When city entered land to construct permanent improvements for contemplated public use, acquisition of land through eminent domain by condemnation was inferred. *Langenberg v. City of St. Louis,* 355 Mo. 634, 197 S.W. 2d 621 (1946).

Absent final judgment on the exceptions to the assessments of benefits there is nothing to review. *City of St. Louis v. Pope,* 68 S.W. 2d 805 (1934).

The trial court's judgment will not be overturned unless the damages awarded are so grossly excessive as to indicate abuse of discretion or arbitrary action. *Ex parte Taylor,* 108 S.W. 2d 636 (1937).

The benefit district should not be fixed in the ordinance providing for the improvement. *Wabash Ry. Co. v. City of St. Louis,* 64 F. 2d 921 (1933).

McQuillin:

Ch. 32 Eminent Domain

Section 1 Initiation of proceedings.

Condemnation of (and) or damage to private property, real or personal, or any easement or use therein or restriction of the use thereof for public use, shall be effected as herein provided and as may be further provided by ordinance not inconsistent with this charter.

City Counselor Ops.: 8138, 8745, 10281

Cases:

A petition that does not state the property affected fails to state a cause of action. *City of St. Louis v. Waterman,* 277 Mo. 221, 209 S.W. 905 (1919).

A defective petition may be amended. *City of St. Louis v. Waterman,* 277 Mo. 221, 209 S.W. 905 (1919).

Since the ordinance under this section must describe the taxing district in order to be valid, there is necessary notice. *City of St. Louis v. Missouri Pac. Ry. Co.,* 278 Mo. 205, 211 S.W. 671 (1919).

The description requirements are met when the property sought to be appropriated is described; there is no need to describe each landowner's property. *State v. Grimm,* 284 S.W. 490 (1926); *State v. Hall,* 325 Mo. 165, 28 S.W. 2d 80 (1930).

Plat filed with and made part of petition may be used to aid description. *State v. Grimm,* 314 Mo. 242, 284 S.W. 490 (1926).

The city cannot obtain an easement for a street to cross railroad tracks without an order from the public service commission. *City of St. Louis v. St. Louis-San Francisco Ry. Co.,* 330 Mo. 499, 50 S.W. 2d 637 (1932).

When the extension of a street does not serve a public

purpose there can be no action for condemnation. *City of St. Louis v. Butler Co.,* 223 S.W. 2d 831 (1949).

The amount of damages should be determined at the time the award is made, not the effective date of ordinance. *City of St. Louis v. International Harvester Company,* 350 S.W. 2d 782 (1961).

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 1, and enact new Section 1, relating to parties and purposes of condemnation proceedings.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to parties and purpose of condemnation proceedings.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 1, enacting new Section 1, relating to condemnation procedures.

Voter Adoption Date: April 4, 1933.

(a) *Petition.* Upon the board of aldermen providing by ordinance recommended by the board of public service, (1) for the appropriation of any private property or any easement, use, right or interest therein, or (2) damage by reason of establishing or changing the established grade of any public street or alley or restriction of the use thereof, for any public use, or (3) for any public improvement or work which will damage private property, the city counselor, in the name of the city, shall apply promptly and in no event later than six months after such ordinance is effective to the circuit court of the eighth judicial circuit, or to any judge thereof in vacation by petition setting forth the general nature of the public use for which the property is to be appropriated, damaged or restricted, a description of the property and the estate or interest therein or restriction of the use thereof in each instance which the city seeks to appropriate, damage or impose, and praying the appointment of three disinterested commissioners to assess damages and benefits as hereinafter provided, to which petition the owners shall be made defendants by name, if known, and if unknown, by describing their claims and interests in such property and how derived by them.

City Counselor Ops.: 8280

(b) *Parties defendant.* If the action affects the property of persons under guardianship, the guardians shall be made defendants; if the property of married persons, their consorts shall be made defendants; if an estate or interest less than a fee, the persons having the next vested estate in remainder or reversion shall be made defendants or their interests will not be bound; but only persons in actual possession of and claiming title or who have record title appearing upon the proper records of the city to property affected, need be made defendants.

(c) *Notice.* Notice of the filing of the petition, describing the property to be taken, damaged or restricted, shall be filed and recorded in the office of the recorder of deeds, otherwise purchasers of such property shall not be bound by the proceedings under the petition, provided that whenever the board of public service of said city shall by order designate the established grade of any street, boulevard, parkway, alley or other highway proposed in said ordinance to be opened, established or widened, damages and benefits, because of the establishment of such grade, may be ascertained and determined together with and in the same proceeding as the damages and benefits with respect to said opening, establishment or widening; in which case said established grade shall be set forth in the petition or in an amended petition.

(d) *Resubmission of ordinance.* Where the improvement is a major highway or traffic artery, and is so designated in the ordinance, said ordinance may provide that in case the total damages, as finally determined by the court, to be awarded for property damaged or taken, shall exceed a sum stated in such ordinance then said ordinance shall be resubmitted to the board of aldermen. Pending action by them, final judgment in the cause shall not be entered for at least four months after such final determination of damages.

Section 1-A Information to be filed by board of public service.

Whenever an ordinance providing for the appropriation, taking, damaging, or restricting the use of private property is pending before the board of aldermen, the board of public service shall upon request of the board of aldermen cause to be prepared an estimate of the total damages to be occasioned by said public work or improvement, an outline of the suggested benefit or taxing district, and an estimate of the probable maximum aggregate of benefits to be assessed therein, together with a general explanation of the manner in which such aggregate of benefits was determined.

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding five new sections as:

1A;

17, payment of benefits in installments and anticipation bonds;

18, sale of unpaid judgments for benefit assessments;

19, division of assessments against joint owners; and

20, application of amendment of Article XXI to prior proceedings.

Voter Adoption Date: April 4, 1933.

Section 2 Issuance and service of summons.

Upon the filing of the petition, summons shall be issued, giving the defendants at least ten days' notice of the hearing on the petition; and the city marshal shall serve such summons and make return as required by law for service and return of writs of summons. If the name or residence of any owner be unknown, or if any owner does not reside in the state, or cannot be found within the state, a notice giving the general nature of the petition, with a description of the property of such unknown or nonresident owners, or owners who cannot be found within the state, and the day fixed for the hearing, shall be published once each week for four consecutive weeks, the last publication to be at least ten days before the hearing in a newspaper qualified by law to publish such notices and advertisements.

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 2, and enact new Section 3, relating to service of summons on persons not found in State.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to service on persons who cannot be found in State.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: amending Section 2, by inserting clarifying phrases on service of summons, and advertising notice of condemnation suit.

Voter Adoption Date: April 4, 1933.

Section 3 Commissioners, appointment, duties.

The permanent condemnation commission and the offices thereof are hereby abolished, provided, however, that any present duly appointed and acting commissioners shall continue to serve as though appointed as provided hereunder for the purposes of carrying out the responsibilities and duties of such commissioners in any proceeding instituted under article XXI of this charter prior to the effective date of this amendment.

The court, or a judge thereof in vacation, when notice has been given as herein above provided, shall appoint three disinterested commissioners, freeholders resident in the City of St. Louis for five years next before their appointment to assess the damages and benefits in said condemnation proceeding.

The commissioners shall familiarize themselves with the property involved in the said condemnation proceeding pending in the circuit court. They shall confer among themselves regarding the damages and benefits respectively involved in the said proceeding to the end that the greatest possible uniformity in the awarding of damages and the assessment of benefits may be achieved. The court, or the judge thereof in vacation shall make such rules and regulations for the government of said commission and the proceedings thereof as it may deem proper which said rules and regulations may from time to time be altered, amended, modified or rescinded. The commissioners shall keep such records as they may determine advisable and shall hold their hearings publicly in some suitable place or places designated by the court. It shall be the duty of the proper authorities to prepare and furnish said place or places and to provide for the proper lighting, heating and care of same and to furnish such facilities for the proper preservation of their files and records and do such other things as shall be proper to enable said commissioners to properly discharge their duties. The court or judge, in designating such commissioners, shall exclude from their consideration the assessment of all damages for the trial of which a jury has been duly demanded.

Such commissioners shall enter upon their duties without delay, and shall make report within the time fixed by the court, which time shall in no event exceed ninety days, unless the court is satisfied upon written application of the commissioners, and a hearing thereof to be held by the court within five days after the filing of such application, that additional time be granted for good cause shown.

Any party entitled to and desiring trial by jury of its rights to compensation shall file in the cause, before the assignment of the commissioners in each case, written demand therefor, including therein a description of

its property to be taken or damaged, and failure so to do shall be a waiver of the right of trial by jury. Upon such demand being filed, the court shall award a jury trial and proceed therewith as in trial of civil actions; but before final judgment shall be rendered on the verdict of the jury and before the commissioners shaft [shall] make their report, the court shall certify the verdict of the jury to the commissioners, and they shall include in their report, with their separate findings, assessments and awards, the damages as assessed by the jury, reciting the fact. The claims for damages of all parties demanding jury trial in any action under this article shall be heard at the same time before one jury. The commissioners shall assess damages for property appropriated or damaged for the trial of which a jury is not demanded, as aforesaid.

City Counselor Ops.: 8568

Statutes

By the terms of RSMo 523.040, the condemnation commissioners appointed by the court in the City of St. Louis must include one licensed real estate broker or appraiser.

Cases:

The use of eminent domain to eliminate "blight" is subject to special statutory standards, including judicial review of any "blighting" determination by the legislative body. *Centene Plaza Redevelopment Corp. v. Mint Properties*, 225 S.W.3d 431 (Mo. 2007).

Benefits can be assessed against abutting property owners only for the costs of constructing a boulevard. *City of St. Louis v. Bell Place Realty Co.,* 259 Mo. 126, 168 S.W. 721 (1914).

The commissioners' report, when confirmed by the circuit court, becomes a final judgment. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925).

The legislative power of levying assessments for condemnation benefits may be delegated to the commission and the courts. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925).

Assessment of damages is made according to the separate distinct properties taken and not on the basis of different interests in the property. *State v. Hall,* 235 Mo. 165, 28 S.W. 2d 80 (1930). In the absence of a trial by jury, the report of the commissioners is, in effect, a jury verdict. *City of St. Louis v. Franklin Bank,* 340 Mo. 383, 100 S.W. 2d 924 (1936); *City of St. Louis v. Pandjiris Weldment Co.,* 270 S.W. 2d 17 (1954).

The report of the commissioners is presumptively valid. *City of St. Louis v. Franklin Bank,* 340 Mo. 383, 100 S.W. 2d 924 (1936); *City of St. Louis v. Pandjiris Weldment Co.,* 270 S.W. 2d 17 (1954).

This section is constitutional since a jury trial can be waived if a timely request is not made. *City of St. Louis v. International Harvester Company,* 350 S.W. 2d 782 (1961).

A charter-created condemnation commission has been held to supplant the ordinary court-appointed condemnation commission in condemnation proceedings under a charter. State ex rel. St. Louis County v. Campbell, 498 S.W.2d 833 (Mo.App.E.D. 1973). In practice in the City of St. Louis, the condemnation commission under this section has not been utilized.

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 3, and enact new Section 3, relating to appointment of commissioners in condemnation proceedings.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to appointment of commissioners in condemnation proceeding.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 3 and enacting a new Section 3, relating to court procedures on condemnation petitions.

Voter Adoption Date: April 4, 1933.

Submission Ordinance No. 56590

Submission Ordinance Approved October 29, 1973.

Amendment Substance: repeal of Sections 3, 7, and 9, as amended, and enacting new Sections 3, 7, and 9, respectively relating to abolishing the permanent Condemnation Commission of the City; empowering the court upon exceptions to, among other things, appoint a new commission; fixing commissioners' compensation to $100 per day and a maximum of five days in any one action unless otherwise ordered by the court.

Voter Adoption Date: August 6, 1974.

Section 4 Determination of damages; liability of benefited property.

It shall be the duty of the commissioners, except as herein otherwise provided, in the condemnation or the damaging of property for highways, streets, boulevards, parkways, alleys, wharves, sewers, markets, public squares and parks, or widening or enlarging the same, or in the changing of grade of streets or other public ways or restricting the use of property or the making of other public work or improvements, to ascertain the value of property proposed to be taken and the actual damage done to private property or restriction of the use thereof, but no allowance shall be made for improvements begun on property after service of summons on or notice by publications to the owner thereof as herein provided; and the public work, im-

provement or use contemplated shall not be considered in determining the value of property taken. For the payment of all such damages the commissioners shall assess against all the lots or parcels of property or interests therein especially benefited by the proposed public work or improvement, separately, and in the name of the several owners thereof, the amount that each such lot or parcel of property or interest therein so assessed shall be especially benefited by the proposed public work or improvement, and against the city the balance of the damages over and above the aforesaid special benefits assessed; provided, that in the opening of an alley there shall be assessed against the lots or parcels in the blocks in which the alley is opened benefits sufficient to pay all damages.

City Counselor Ops.: 8300, 9482

Cases:

Benefits can only be assessed against abutting property owners for the costs of constructing a boulevard. *City of St. Louis v. Bell Place Realty Co.,* 259 Mo. 126, 168 S.W. 721 (1914).

Benefits shall not be assessed against property the city has acquired through condemnation. *City of St. Louis v. Senter Commission Co.,* 337 Mo. 238, 85 S.W. 2d 21 (1935).

Improvement for which special benefits are assessable must be specifically mentioned. *City of St. Louis v. Pope,* 344 Mo. 479, 126 S.W. 2d 1201 (1938).

The cost of building a memorial plaza and auditorium cannot be assessed as a benefit. *City of St. Louis v. Pope,* 344 Mo. 479, 126 S.W. 2d 1201 (1938).

The term "specially benefited" or "especially benefited" is intended to apply to all property in the benefit district whose market value has been increased by reason of improvement. *Wabash Ry. Co. v. City of St. Louis,* 64 F. 2d 921 (1933).

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: amending Section 4 by inserting clarifying phrases for determination of damages upon condemnation suit.

Voter Adoption Date: April 4, 1933.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding a new Section 4A, relating to major highway or traffic arteries, assessment procedure and limitations and sources of funding from property owners and motor fuel taxes.

Voter Rejection Date: April 4, 1933.

Section 5 Property to be viewed; establishment of benefit or taxing district; publication of boundaries; report of assessment.

The commissioners shall view the property to be taken, damaged, restricted or assessed; fix the benefit or taxing district; publish, for ten days before beginning their assessment, in said newspaper qualified by law to publish, such notices and advertisements the last insertion being at least five days before the time named in such notice; and publish once a week for two consecutive weeks in a newspaper of general circulation in the City of St. Louis, published for at least one year, and printed in the English language, a notice of the boundaries of the benefit or taxing district and of the time and place at which they will assess such damages and benefits, and shall cause to be posted by the city marshal, at least fifteen days prior to the time designated, a copy of said notice in at least six places exposed to public view within said district; they shall hear the evidence submitted by the parties interested; assess the damages as of the date said ordinance became effective, or as to any property added by an amendment to such ordinance as of the date upon which said amendment became effective; they shall have authority to examine under oath such witnesses as may appear; they shall make report, in which at least two commissioners shall concur, of such assessment in writing and under oath to the circuit court. Such report shall be filed within the limit of the time fixed by the court, and shall set forth in brief and concise paragraphic form all findings of fact, when so directed by the court upon application of any interested party. In such report the compensation allowed and the benefits assessed against each owner shall be separately stated. When the commissioners both assess benefits and allow damages against any one property owner they shall deduct the lesser from the greater.

Cases:

The publication of notice under this section amounts to due process of law giving the circuit court jurisdiction. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925).

The valuation of property is made from the date the ordinance became effective. *State v. Beck,* 333 Mo. 118, 63 S.W. 2d 814 (1933); *City of St. Louis v. Senter Commission Co.,* 337 Mo. 238, 85 S.W. 2d 21 (1935).

The provision that the amount of damages should be determined from the effective date of the ordinance is unconstitutional. Damages should be determined at the time the property is taken. *City of St. Louis v. International Harvester Co.,* 350 S.W. 2d 782 (Mo. 1961).

In a condemnation processing personal service on the

parties in the benefit district is not required. *City of St. Louis v. Koch,* 156 S.W. 2d 1 (1941).

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 5, and enact new Section 5, relating to condemnation hearings, assessments of damages and benefits by commissioners, and reports of commissioners.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to hearings, assessment of damages and benefits by commissioners, and report of commissioners.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 5, and enacting new Section 5, duties of commissioners upon condemnation suit.

Voter Adoption Date: April 4, 1933.

Section 6 Rights of city upon payment of damages into court.

At any time after the commissioners file their report the city may pay into court the amount of damages assessed, less benefits, if any, and thereupon it shall be entitled to take possession of or damage the property, assuming the lien of all general taxes not then payable on property actually appropriated.

City Counselor Ops.: 8359, 8376

Cases:

Consequential damages due to the change in the grade of a street should be paid before the grading work is begun. *City of St. Louis v. Wallrath,* 293 Mo. 385, 239 S.W. 110 (1922).

Judgment in condemnation suit is res judicata in subsequent tort action to recover consequential damages. *Treymayne v. City of St. Louis,* 320 Mo. 120, 6 S.W. 2d 935 (1928).

Although exceptions to a condemnation award have been filed, the city may enter into possession and remain in possession if the exceptions are sustained. *State v. Sartorius,* 340 Mo. 832, 102 S.W. 2d 890 (1937).

City may take possession of condemned property pending appeal, if it pays the full amount due without condition or reservation. *City of St. Louis v. Senter Commission Co.,* 343 Mo. 1075, 124 S.W. 2d 1180 (1939).

When owner is paid just compensation title passes to condemnor. *State v. Oakley,* 354 Mo. 124, 188 S.W. 2d 820 (1945).

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 6, and enact new Section 6, relating to interlocutory condemnation benefits.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to interlocutory judgments for benefits.

Voter Rejection Date: April 7, 1931.

Section 7 Exceptions, review by court.

Within twenty days from the filing of the commissioners' report, exceptions in writing thereto may be filed by any party interested, and upon such exceptions the court shall review the report, and may order, on cause shown, a new assessment by other commissioners, or make such other orders thereon as justice may require. The court shall hear and dispose of such exceptions with all reasonable speed, and may itself assess benefits anew.

Cases:

Under this section the court may use its inherent power to correct clerical errors. *City of St. Louis v. Bush,* 252 Mo. 209, 158 S.W. 309 (1913); *City of St. Louis v. Senter Commission Co.,* 340 Mo. 633, 102 S.W. 2d 103 (1937).

The supreme court will only interfere upon the showing of an abuse of discretion in ordering a new appraisal. *City of St. Louis v. Gerhart Realty Co.,* 328 Mo. 103, 40 S.W. 2d 661 (1931).

The court is not required to write a memorandum opinion stating the reasons for setting aside the commissioners' report. *City of St. Louis v. Senter Commission Co.,* 335 Mo. 489, 73 S.W. 2d 389 (1934).

The exceptor bears the burden of proof in showing that the commissioners' report was wrong. *City of St. Louis v. Franklin Bank,* 340 Mo. 383, 100 S.W. 2d 924 (1936).

In the absence of a trial by jury, the report of the commissioners is, in effect, a jury verdict. *City of St. Louis v. Franklin Bank,* 340 Mo. 383, 100 S.W. 2d 924 (1936); *City of St. Louis v. Pandjiris Weldment Co.,* 270 S.W. 2d 17 (1954).

Although exceptions to a condemnation award have been filed, the city may enter into possession and remain in possession even if the exceptions are sustained. *State v. Sartorius,* 340 Mo. 832, 102 S.W. 2d 890 (1937).

Statutes providing for trial by common law jury of exceptions were not applicable to constitutional charter city. *State v. Williams,* 362 Mo. 176, 240 S.W. 2d 703 (1951).

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 7, and enacting new Section 7, relating to exceptions to commissioners' reports.

Voter Adoption Date: April 4, 1933.

Submission Ordinance No. 56590

Submission Ordinance Approved October 29, 1973.

Amendment Substance: repeal of Sections 3, 7, and 9, as amended, and enacting new Sections 3, 7, and 9, respectively relating to abolishing the permanent Condemnation Commission of the City; empowering the court upon exceptions to, among other things, appoint a new commission; fixing commissioners' compensation to $100 per day and a maximum of five days in any one action unless otherwise ordered by the court.

Voter Adoption Date: August 6, 1974.

Section 8 Entry of judgment; payment of damages; collection where city fails to pay.

The court upon approving the commissioners' report shall render final judgment thereon reciting the report and adjudging that the city have and hold the property petitioned for, describing the same, for the purposes specified, upon payment of the damages less the benefits assessed in each instance; that so much of the report as is a judgment for benefits against specific property be a lien on such property for ten years from entry of the judgment, and prior to all other liens thereon; and that the city recover the respective benefits in excess of damages assessed in each instance against private property with interest from date of judgment, or at the termination of such period of grace, not to exceed one year, as may be granted by the board of aldermen in the ordinance authorizing the public work or improvement, and have execution therefor.

The clerk shall forthwith make and deliver a certified copy of such judgment to the comptroller, who shall record the same in a book kept and conveniently indexed for that purpose. The comptroller may, forthwith, and if no appeal be taken from such final judgment, he shall, at the expiration of the time for such appeal, forward a copy of the judgment to the board of aldermen; and within sixty days after the receipt of such copy, unless an appeal is pending, and, in no event later than sixty days after disposition of all appeals, the board of aldermen shall make an appropriation for the payment out of the city treasury of the damages assessed in favor of each party entitled thereto less his benefits as determined by such final judgment, and the city treasurer, on warrant of the comptroller, shall cause payment to be made to the several parties entitled or into court for their use, as the case may require.

Should the board of aldermen fail to make such an appropriation the judgment for damages shall be collected by the owners concerned as other judgments against the city are collected and if any part of such assessment of benefits be not paid when due, special execution shall issue on request of the comptroller against the property charged with the lien and proceedings thereunder shall conform, as near as may be, to the proceedings under special executions on ordinary judgments foreclosing liens on lands.

Should any such final judgment be reversed on appeal and a new assessment be ordered, the city or any defendant shall have judgment for any excess due by reason of payment having been made by such party under a prior final judgment in the cause.

City Counselor Ops.: 8280

Cases:

The duration of the lien of benefit assessments may last ten years. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925). Judgment in condemnation suit is res judicata in subsequent tort action to recover consequential damages. *Treymayne v. City of St. Louis,* 320 Mo. 120, 6 S.W. 2d 935 (1928).

The court is not required to write a memorandum opinion stating the reasons for setting aside the commissioners' report. *City of St. Louis v. Senter Commission Co.,* 335 Mo. 489, 73 S.W. 2d 389 (1934).

The additional damages need not be paid while an appeal is pending. *State v. Sartorius,* 340 Mo. 832, 102 S.W. 2d 890 (1937).

Cause of action to enjoin collection and assignment of judgments for benefit taxes did not accrue upon filing of commissioners' report, but upon final judgment. *Eighth and Morgan G and F Station v. City of St. Louis,* 342 Mo. 874, 119 S.W. 2d 202 (1938).

City may take possession of condemned property pending appeal if it pays the full amount due without condition or reservation. *City of St. Louis v. Senter Commission Co.,* 343 Mo. 1075, 124 S.W. 2d 1180 (1939).

A benefit judgment is prior to any other lien except the lien for general taxes. *State v. Hughes,* 166 S.W. 2d 516 (1942).

The section must be construed with § 6 to the effect that title passes when just compensation is paid. *State v. Oakley,* 188 S.W. 2d 820 (1945).

The lien of a benefit judgment is a tax lien and governed by the rule of reverse priorities. *Stiers v. Vrooman,* 234 Mo. App. 161, 115 S.W. 2d 94 (1938).

When city appeals from a benefit judgment, it is not

entitled to interest prior to affirmance. *State v. City of St. Louis,* 234 Mo. App. 209, 115 S.W. 2d 513 (1938).

The liens of successive benefit judgments are on a parity. *City of St. Louis v. Wall,* 235 Mo. App. 9, 124 S.W. 2d 616 (1939).

Interest not suspended during city's appeal from judgment. *City of St. Louis v. Richardson,* 281 S.W. 395 (1926).

A general tax lien is prior to a judgment lien for benefits in condemnation. *City of St. Louis v. Koch,* 156 S.W. 2d 1 (1941).

Special benefit assessments not reduced to judgment are not liens and not collectible from fund paid into court in condemnation proceedings. *City of St. Louis v. Dyer,* 56 F. 2d 842 (1939).

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 8, enact new Section 8, relating to condemnation judgments for excess payments by City or property owners.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to judgments for excess payments by City or property owners.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: amending Section 8, by inserting phrase permitting grace period for payment of benefits assessed in court judgment of condemnation.

Voter Adoption Date: April 4, 1933.

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 9 Cost of litigation, compensation of commissioners.

The losing party shall pay the cost caused by litigation subsequent to the filing of the commissioners' report, and the city shall pay all other costs, including the compensation of the commissioners, which shall be one hundred dollars per day for each commissioner for not exceeding five days in any one action unless the court makes an order allowing further time at like compensation.

Cases:

The court has the discretion to extend the time for the commissioners to make their report, the city being required to pay the additional compensation. *City of St. Louis v. Schuttenberg,* 212 S.W. 864 (1919).

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 9, and enacting a new Section 9, by striking out the provision fixing commissioners' compensation at $5 per day.

Voter Adoption Date: April 4, 1933.

Submission Ordinance No. 56590

Submission Ordinance Approved October 29, 1973.

Amendment Substance: repeal of Sections 3, 7, and 9, as amended, and enacting new Sections 3, 7, and 9, respectively relating to abolishing the permanent Condemnation Commission of the City; empowering the court upon exceptions to, among other things, appoint a new commission; fixing commissioners' compensation to $100 per day and a maximum of five days in any one action unless otherwise ordered by the court.

Voter Adoption Date: August 6, 1974.

Section 10 Limitation on subsequent action where proceedings dismissed.

If the city dismisses any action for the appropriation, damaging or restriction of the use of any property for any reason other than defect in the proceedings, it shall not begin a like action within ten years after such dismissal, unless upon the petition of the owners of three-fifths (⅗) of the property proposed to be taken, damaged or restricted, measured by frontage upon the proposed improvement, or upon condition that the city shall pay all of the damages assessed therein.

City Counselor Ops.: 7835

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: repealing Section 10, and enacting a new Section 10, containing the same matter and adding clarifying matter; re subsequent condemnation actions.

Voter Adoption Date: April 4, 1933.

Section 11 Effect on abutting property of establishment of boulevards and parkways; power of city.

In establishing, opening and widening boulevards and converting streets into boulevards or parkways, compensation shall be allowed to owners of property abutting thereon for damages occasioned by any limitation that may be put upon the owner's use of such property; and the city may regulate by ordinance the character of traffic and vehicles that shall be permitted

on boulevards or parkways, prohibit the erection of any structure on property abutting on a boulevard or parkway outside a specified building line, and forbid the use of any property so abutting for all or any business purposes. An ordinance establishing a boulevard or parkway may be repealed, upon recommendation of the board of public service, and thereupon the boulevard or parkway shall become a street, which, together with the property abutting thereon, shall be free from all restrictions imposed by the repealed ordinance. Damages and benefits resulting from such repeal after the boulevard or parkway has been opened shall be ascertained and paid as herein provided for establishing boulevards or parkways.

Cases:

A boulevard does not have to have regular dimensions and sides. *City of St. Louis v. Handlan,* 242 Mo. 88, 145 S.W. 421 (1912).

Exemption of certain properties from the established building line is not permitted. *City of St. Louis v. Handlan,* 242 Mo. 88, 145 S.W. 421 (1912).

An ordinance is void if it is ambiguous whether a street or a boulevard is to be established. *City of St. Louis v. Bell Place Realty Co.,* 259 Mo. 126, 168 S.W. 721 (1914).

A boulevard is of a definite character and cannot be described as a street. *Albers v. City of St. Louis,* 268 Mo. 349, 188 S.W. 83 (1916).

The word "avenue" is synonymous with street. *City of St. Louis v. Breuer,* 223 S.W. 108 (1920).

Section 12 Procedure in condemnations for miscellaneous purposes.

When the city takes or damages private property for a public use other than those enumerated in section 4 of this article all damages shall be ascertained as hereinbefore provided and shall be paid by the city.

Cases:

The entire cost of building a memorial auditorium must be borne by the city. *City of St. Louis v. Pope,* 344 Mo. 479, 126 S.W. 2d 1201 (1938).

Section 13 When assessment for benefits to equal amount of damages.

The vacation of highways, streets, boulevards, parkways and alleys shall be provided for by ordinance recommended by the board of public service, and easements and rights therein shall be condemned and the special damage and benefits caused thereby shall be ascertained and assessed, in the manner, by the proceedings, and according to the rules hereinbefore prescribed as to other appropriating or damaging; provided, that benefits sufficient to pay all damages shall be assessed against the lots or parcels of land abutting the highway, street, boulevard, parkway or alley to be vacated.

City Counselor Ops.: 8224, 8324, 10281

Cases:

Glasgow v. City, 15 Mo. App. 112, affirmed 87 Mo. 678.

Glasgow v. City, 107 Mo. 198, 17 S.W. 743.

Knapp, Stout & Co. v. City, 153 Mo. 560, 55 S.W. 104.

Knapp, Stout & Co. v. City, 156 Mo. 343, 56 S.W. 1102.

Section 14 Acquisition of property by private purchase; vacation of streets, etc.

Nothing herein shall limit the power of the city by ordinance recommended by the board of public service to acquire property by private purchase, or to vacate any highway, street, boulevard, parkway or alley without proceeding hereunder when the owners of all property specially damaged petition therefor and waive all damages.

City Counselor Ops.: 7719, 8030, 8224, 8262, 8324, 9844, 99010, 10281, 10387

Cases:

The words "owners of all property" refer to the owners in fee of the real estate. *Marks v. Bettendorf's Inc.,* 337 S.W. 2d 585 (1960).

Section 15 When assessments may be paid in installments; issuance of bonds in anticipation of unpaid installments.

Ordinances for appropriating or damaging property for markets, public squares, public parks and other like public uses and improvements may provide for payment of the special assessments made on lands specially benefited by such uses and improvements in one installment or in equal annual installments not to exceed seven in number, in which event the judgments shall so recite; such judgments shall bear interest payable annually at the rate of six per centum per annum on any unpaid part thereof from entry until paid but any part thereof not paid when due shall thereafter bear interest at the rate of eight per centum per annum; and for the purpose of anticipating the collection of such judgments the city may issue and sell local improvement bonds, following the procedure, as far as the same is applicable, provided in article XXIV, for bonds issued in anticipation of the collection of special assessments to pay for local improvements; provided, that the city

shall not be liable to pay bonds herein provided for, but the same shall be payable solely out of the collections of the particular judgments.

Cases:

This section supports the argument that the duration of the lien of benefit assessments may last ten years. *Schwab v. City of St. Louis,* 310 Mo. 116, 274 S.W. 1058 (1925).

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: repeal Section 15, enact new Section relating to payment of benefit assessments in installments; issuance of bonds or condemnation certificates in anticipation of collection of benefit assessments, and sale of judgments for benefit assessments.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to payment of benefit assessments in installments; issuance of bonds or condemnation certificates in anticipation of collection of benefit assessments; and to sale of judgments for benefit assessments.

Voter Rejection Date: April 7, 1931.

Section 16 Appropriation of private property in excess of actual requirements.

Whenever it may lawfully be done, the board of aldermen, in the ordinance providing for the appropriation of private property or any easement or use therein for any highway, street, boulevard, parkway, park, wharf, bridge, viaduct, subway, tunnel or sewer, or providing for any public work or improvement which will damage or benefit private property, may provide for the appropriation in fee by the city of private property or any easement or use therein in excess of that actually required for such specific purpose, and in the same or a different ordinance may authorize the sale of such excess for value with or without restrictions. Such excess shall be condemned and compensation therefor ascertained and rendered in the same proceeding, and in the same manner as near as may be, as the property, easement or use actually needed as aforesaid; provided, that the value of such excess shall be paid for by the city.

City Counselor Ops.: 9623

Section 17 Payment of benefits in installments; issuance of anticipation bonds.

The board of aldermen, in the ordinance establishing the public work or improvement or by a subsequent ordinance recommended by the board of public service, may provide for payment of the special assessments levied against land especially benefited by such public work or improvement, in equal annual installments not to exceed ten in number, in which event the judgments shall so recite; provided that any such judgment may be paid in full at any time, except that, when bonds shall be issued as hereinafter provided, such payment may be made only within thirty days after the entry of judgment, or within any period of grace granted as provided in Section Eight. The deferred installments of said judgment shall bear interest at the rate of six percent per annum, commencing thirty days after the date of entry thereof, unless otherwise provided by ordinance in accordance with Section Eight, until due, and if not paid when due, at the rate of eight percent per annum thereafter.

For the purpose of anticipating the collection of such judgments, the city may issue and sell improvement bonds to an amount not exceeding eighty-five percent of the aggregate of such judgments, such aggregate not including any assessments paid in full as herein provided or not then finally determined judicially. The city shall not be liable for the payment of said bonds, but the same shall be payable solely out of the collection of the particular judgments. Said bonds may be made payable serially. The ordinance authorizing the particular issue shall prescribe the form and denomination thereof; the date of maturity or maturities thereof, not to exceed ten years in any instance; the rate of interest thereon and date and place of its payment; by what officers and in what manner they shall be executed and attested; and the place and method of payment, save only the fund out of which payment shall be made, together with other provisions and regulations concerning such bonds and not inconsistent herewith. The board of aldermen by ordinance, recommended by the board of public service, may appropriate out of the general revenue, sufficient money to pay or to provide a fund in advance to pay such part of any improvement bonds issued as the proceeds of special assessments securing the same may prove insufficient to pay as they become due, not exceeding ten percent of the amount of the bond issue, and provide for reimbursement, out of the proceeds of said special assessments after all such bonds and interest have been fully paid.

All such judgments shall be collected by the city and the proceeds thereof shall be preserved and applied solely to the payment of the interest and principal of

said bonds as the same shall become due and shall be used for no other purpose until the whole of said interest and principal shall have been paid.

The board of aldermen may by ordinance provide for the issuance of a single bond issue to anticipate the collection of special benefit judgments rendered in two or more proceedings in the manner herein provided, such bond issue being secured by all of such special benefit judgments.

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: enacting a new Section 17, providing for the inclusion of condemnation and change of grade matters in the same proceeding.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to inclusion of condemnation and change of grade in some proceedings.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding five new sections as:

1A;

17, payment of benefits in installments and anticipation bonds;

18, sale of unpaid judgments for benefit assessments;

19, division of assessments against joint owners; and

20, application of amendment of Article XXI to prior proceedings.

Voter Adoption Date: April 4, 1933.

Section 18 Sale of unpaid judgments for benefit assessments.

The city may also sell, assign or transfer, for not less than ninety percent of the face value thereof, the whole or any part of any unpaid judgments for such benefit assessments, and apply the proceeds to the payment of such damage awards.

History:

Submission Ordinance No. 38663

Submission Ordinance Approved July 10, 1930.

Amendment Substance: enacting a new Section 18, providing for amendments of condemnation ordinances and proceedings thereon.

Voter Rejection Date: November 4, 1930.

Submission Ordinance No. 38865

Submission Ordinance Approved February 19, 1931.

Amendment Substance: relating to amendments of condemnation ordinances and proceedings thereon.

Voter Rejection Date: April 7, 1931.

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding five new sections as:

1A;

17, payment of benefits in installments and anticipation bonds;

18, sale of unpaid judgments for benefit assessments;

19, division of assessments against joint owners; and

20, application of amendment of Article XXI to prior proceedings.

Voter Adoption Date: April 4, 1933.

Section 19 Division of assessment against joint owners.

Whenever title to distinct portions of any lot or parcel of property assessed [for] benefits in accordance herewith, shall vest in different owners, on application in writing of any one or more of such owners, the board of commissioners first having given notice by mail addressed to the owners in fee, if known, of the other portions of said property, at their last known address, shall determine the amount of said assessment chargeable to such distinct portion in accordance with the original assessment; and the parties charged with the collection thereof shall accept payment of said amount with interest due thereon. The lien of the judgment shall then terminate as to such portion, proper entries thereof being made on the records of the court.

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding five new sections as:

1A;

17, payment of benefits in installments and anticipation bonds;

18, sale of unpaid judgments for benefit assessments;

19, division of assessments against joint owners; and

20, application of amendment of Article XXI to prior proceedings.

Voter Adoption Date: April 4, 1933.

Section 20 Application of amendment to prior proceedings.

That no amendment adopted April 4, 1933, to Article XXI of this charter shall apply to any proceed-

ing instituted prior to that date except as follows: (1) any such proceeding in which commissioners to assess benefits and damages have not been appointed prior to said April 4, 1933, shall be referred to the permanent commission and further proceedings had in accordance with the provisions of this article as amended; (2) the provisions of sections 17 and 18 shall apply to any proceedings at present pending in the circuit court.

History:

Submission Ordinance No. 39898

Submission Ordinance Approved January 30, 1933.

Amendment Substance: Article XXI amended by adding five new sections as:

1A;

17, payment of benefits in installments and anticipation bonds;

18, sale of unpaid judgments for benefit assessments;

19, division of assessments against joint owners; and

20, application of amendment of Article XXI to prior proceedings.

Voter Adoption Date: April 4, 1933.

Article XXII

PUBLIC WORKS AND IMPROVEMENTS

RSMo:

RSMo Ch. 88 (2016) Public works and special assessments therefor

City Counselor Ops.: 7846, 8557, 9148

Cases:

The public improvement contemplated in this article does not apply to condemnation of land. *City of St. Louis v. Franklin Bank,* 351 Mo. 688, 173 S.W. 2d 837 (1943).

McQuillin:

Ch. 37 Public Improvements

Section 1 Ordinance initiating public works—Recommendations required.

No ordinance for public work or improvements of any kind, or repairs thereof, shall be adopted, unless prepared and recommended by the board of public service with an estimate of the cost endorsed thereon.

City Counselor Ops.: 8675, 9135, 9208, 9258, 9683, 01091

Cases:

An ordinance to depress or raise railroad tracks must be approved by the board of public works. *American Tobacco Co. v. Missouri Pac. Ry. Co.,* 247 Mo. 374, 157 S.W. 502 (1912).

The restriction that the board of public service must recommend a public improvement applies to proposals under the initiative provisions. *Baum v. City of St. Louis,* 343 Mo. 738, 123 S.W. 2d 48 (1938).

The city must prove that the ordinance was recommended by the board of public service. *Wabash Ry. Co. v. City of St. Louis,* 64 F. 2d 921 (1933).

McQuillin:

37.71—37.100 Formal Action Providing for Improvement

Section 2 Ordinance—Contents; authorization for subsequent appropriations.

Such ordinances shall authorize the particular work or improvement; specify the general character and extent thereof, the material to be used therein and in the alternative if desirable; the manner and regulations under which it shall be executed; the term for which it shall be guaranteed, if at all; the fund or source from which payment shall be made; that it shall be done in accordance with detailed plans and specifications finally adopted and approved by the board of public service before bids are advertised therefor; and shall contain a specific appropriation of an amount sufficient to pay the city's part of the estimated cost; provided, that emergency work and repairs requiring prompt attention may be done under supervision of the board of public service as provided by general ordinance. Ordinances may provide for a greater work or improvement than can be paid for at the time out of an available fund in the city treasury, in which event they shall provide that the work be let and done in parts as appropriations are made therefor. Provided further that where any part of the cost of a particular work or improvement is to be paid out of funds to be derived from the sale of bonds previously authorized at an election held for that purpose and the sale of which has been directed or authorized by ordinance, it shall not be necessary that any of such bonds shall first be sold nor that an appropriation out of funds derived from their sale should first be made, but any contract for such work or improvement which shall be authorized by ordinance and entered into as otherwise required in this charter shall be valid where the ordinance authorizing such contract shall have made an appropriation therefor out of such bonds or out of the proceeds of the sale thereof already made or thereafter to be made; and such contract shall recite that it is subject to the charter and that payment thereon out of such bonds or funds to be derived from the sale thereof shall be limited to the amount specified in the ordinance authorizing the contract.

City Counselor Ops.: 8675, 8925, 9135, 9683, 10287, 10509

Cases:

The city may appropriate bonds instead of appropriating money to pay the cost of public works. *Jennings v. Kinsey,* 308 Mo. 265, 271 S.W. 786 (1925).

Engineering services are explicitly and inspection services impliedly made an essential integral part of the cost of improvement. *Pflueger v. Kinsey,* 320 Mo. 82, 6 S.W. 2d 604 (1928)

History:

Submission Ordinance No. 33644

Submission Ordinance Approved January 20, 1925.

Amendment Substance: repeals old Section 2, enacts new Section 2, relating to ordinance requirement for public works and improvements; authority for subsequent appropriations.

Voter Adoption Date: April 7, 1925.

Section 3 Establishment of benefit, taxing and sewer districts, etc.

Before the board of public service shall recommend any ordinance for any public work or improvement, including the construction or other improvement of any public highway, street, boulevard, parkway, alley, sidewalk or sewer, or any part thereof, to be paid for, in whole or in part, by special assessment, it shall lay out, or shall have laid out, a proposed benefit or taxing district, and as to a sewer, it shall lay out, or shall have laid out, a proposed sewer district or joint sewer district, and shall include therein all property against which it is proposed to assess benefits for the payment, in whole or in part, of the cost and expense of such work or improvement; and the board of public service shall thereafter designate a day upon which it will consider the proposed district and the boundaries thereof and the projected work or improvement at a public hearing, and shall give two weeks' public notice in the paper or papers doing the city publishing, of the time and place of such hearing, which notice shall set forth that a proposed district to pay the cost of the work or improvement has been laid out by said board, and that the boundaries thereof may be ascertained at the time and place specified for such hearing. Such notice shall indicate, in a general way, the location of such district by reference to adjoining streets, and shall designate the matters to be considered and the estimated cost of the work or improvement, which estimate may cover several classes of materials. At such hearing all persons interested may appear and be heard with regard to what property shall be included in said district, and as to all matters connected with the work proposed. Within three days after such hearing is concluded, the board shall file in its office its decision, stating its determination as to the exact boundaries of the district, the work or improvement determined upon, if any, and the class or classes of material to be used. If within eighteen days after such decision the owners of the greater area of the land in such district as determined shall file in the office of the board of public service their written remonstrance against the district as determined, or the proposed work or improvement, the board, at its next meeting, shall reconsider and either reverse its action or transmit to the board of aldermen, together with such remonstrance, an ordinance establishing the benefit or taxing district or sewer district or joint sewer district as determined, and authorizing the proposed work to be done or improvement to be made. Nothing herein contained shall be construed as invalidating ordinances for public work ordained prior to the enactment of this amendment, and contracts hereafter made in pursuance of such ordinances shall be valid, notwithstanding anything to the contrary herein contained.

City Counselor Ops.: 8675, 9135, 9683, 9765, 9777, 90101, 10015, 10287

Cases:

The stating that the ordinance is in the public interest is sufficient reason to justify overriding the remonstrance. *Loth v. City of St. Louis,* 256 Mo. 399, 165 S.W. 1023 (1914); *Meyer v. Bobb,* 185 Mo. App. 685, 171 S.W. 600 (1914).

The boundaries of the benefit district should be fixed at the time within which the property owners may protest. *Schneider Granite Co. v. Independent Breweries Co.,* 258 Mo. 378, 168 S.W. 693 (1914).

No notice to owners of the establishment of a taxing sewer district is necessary. *St. Louis Malleable C. Co. v. George G. Prendergast Const. Co.,* 288 Mo. 197, 231 S.W. 989 (1921).

Compliance with charter provisions constitutes legal notice. There is no need to post notices. *Wiget v. City of St. Louis,* 337 Mo. 799, 85 S.W. 2d 1038 (1935).

Each new ordinance submitted to the board of aldermen, even if identical to an old ordinance, must be accompanied by the prerequisite preliminary steps. *Sessinghaus v. Central Paving and Construction Co.,* 220 Mo. App. 1129, 296 S.W. 1034 (1927).

The issue that the benefit district was arbitrarily laid out must first be raised before the board of public improvements before it can be raised in court. *Standard Inv. Co. v. Stephens-Meier,* 117 S.W. 2d 620 (1938).

Advance notice and hearing is not required on the question of the amount and extent of assessment. *Withnell v. Ruecking Constr. Co.,* 249 U.S. 63 (1919).

Assessments violate the Fourteenth Amendment only when the action of the state authorities is found to be arbitrary

or wholly unequal in operation and effect. *Goldsmith v. Prendergast Constr. Co.,* 252 U.S. 12 (1920).

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: repealing Section 3, enacting new Section 3, relating to benefit taxing districts for public improvements.

Voter Rejection Date: April 5, 1927.

Section 4 How contracts to be let.

All public work, except emergency work or repairs requiring prompt attention, shall be let by the board of public service in pursuance of the ordinance authorizing the same. It shall advertise for bids in the paper or papers doing the city publishing three time, the last publication to be at least ten days before the day appointed for opening the bids (unless a different time and medium of advertising are prescribed in the ordinance), stating the general nature of the work and the time and place of receiving bids therefor. Bids submitted shall be sealed and accompanied by a cashier's or treasurer's check of a bank or trust company in the city payable to the city treasurer, or a surety bond approved by the comptroller, in the amount of the deposit required. Said board shall let the work by contract to the lowest responsible bidder on the plans and specifications finally adopted except as herein otherwise provided, first requiring a bond to be approved by it and the comptroller. Said board may reject any or all bids submitted and readvertise the work. Provided, that any ordinance for any public work or improvement to be paid for by special assessment or otherwise may authorize the board of public service to do the same in a manner prescribed in such ordinance without letting a contract therefor.

RSMo:

RSMo 8.250 (2016) Construction contracts by state or certain subdivisions, when let

RSMo 107.170 (2016) Bond—public works contractor

City Counselor Ops.: 7902, 8010, 8053, 8055, 8279, 8675, 8833, 8925, 9036, 9347, 9361, 9618, 9683, 9697, 9779, 9788, 9841, 9844, 10115, 10118, 10187, 10445, 10467, 10472

Cases:

Contract providing that original builders would make repairs on street for ten years was invalid contravening provision that work be performed by lowest bidder. *Eyermann v. City of St. Louis,* 265 Mo. 529, 178 S.W. 98 (1915).

The manner of advertising for bids need not be provided in the ordinance. *Herman Const. Co. v. Lyon,* 277 Mo. 628, 211 S.W. 68 (1919). Engineering and inspection services, while not emergency work, repairs or let by ordinance, are included in the cost of improvement. *Pflueger v. Kinsey,* 6 S.W. 2d 604 (1928).

The imposition of a minimum wage ordinance contravenes provision that work be done by lowest bidder. *Hillig v. City of St. Louis,* 337 Mo. 291, 85 S.W. 2d 91 (1935).

City employees lacked standing as taxpayers to challenge the city's actions in contracting out acute care and long term health services where they failed to show that the city's actions would necessarily result in the loss of revenue to the city or in an increased tax burden and where, in fact, the city's actions would save a substantial amount of money in the foreseeable future. *Brock v. City of St. Louis,* 724 S.W. 2d 721 (1987), overruled by *Eastern Missouri Laborers Dist. Council v. St. Louis County*, 781 S.W.2d 43 (Mo. 1989).

McQuillin:

37.101—37.209 Public Improvements—Contracts

History:

Submission Ordinance No. 59354

Submission Ordinance Approved January 21, 1985.

Amendment Substance: amend to authorize surety bonds approved by the comptroller, or a cashier's or treasurer's check, in the amount of the deposit required for public work contracts.

Voter Adoption Date: April 2, 1985.

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 5 Form of contracts.

All contracts shall recite that they are subject to the charter and that payments thereon of the city's portion shall be limited to the amount of the particular appropriation.

Section 6 Contracts for sewers to contain provisions for connections.

All contracts for the construction of sewers shall provide that owners of property, with approval of the director of streets and sewers, may make a connection during construction with the sewer or any temporary drain made by the contractor, payment to be made to him for such connection equal to the extra cost caused to him thereby.

Section 7 Complaints as to execution of contract.

The board of public service shall investigate written complaints that any public work or improvement is not being done according to contract and if well founded

the board shall immediately require the contractor to comply with the contract and pay the costs of such investigation.

Section 8 Separate contracts for grading and improvement.

The board of public service may let contracts for the grading and for the improvement of any public highway, street, boulevard, parkway, alley or sidewalk or portions thereof separately, in which event the city may either impose one special assessment to pay for the grading and another to pay for the improvement, or it may pay the cost of the grading and add the same to the cost of such improvement and include the cost of both the grading and improvement in one special assessment, the contractor reimbursing the city for the grading.

Section 9 City to pay assessments where property exempt.

If any property in a benefit or assessment district other than public highways, is not liable to any special assessment herein provided for, the city shall pay the part of the cost of the work or improvement which would otherwise have been assessed against such property.

City Counselor Ops.: 9991

Section 10 How cost of work or improvement levied and assessed—In general.

Ordinances for the improvement of public highways, streets, boulevards and parkways, which may include grading, regrading, preparing roadbed, placing foundation, building of superstructure, resurfacing, repaving, construction and reconstruction of curb, gutters, roadway, paving and crosswalks and intersections, shall provide for payment therefor by special assessment, as follows: One-fourth of the entire cost shall be levied and assessed against the lots or parcels of ground abutting on the work or improvement ratably by lineal feet so abutting, and the remainder of the cost shall be levied and assessed ratably by area against all the lots or parcels of ground, exclusive of public highways, within the benefit or taxing district; provided, however, that such improvement ordinances may provide for the payment of a portion of the cost of such improvements by the city, and for the assessment of the remainder thereof against the property in such benefit district, in the manner specified. The improvement of thirty feet of any wharf farthest from the stream may be paid for in like manner or at the city's expense. Nothing herein contained shall be construed as invalidating ordinances for public work ordained prior to the enactment of this amendment, and contracts hereafter made in pursuance of such ordinances shall be valid, notwithstanding anything to the contrary herein contained.

City Counselor Ops.: 8675, 9498, 9683, 9765, 9838, 9991, 10015, 10047, 10408

Cases:

The opening of an additional street after the benefit district was formed does not destroy any part of a prior lien. *Perkinson v. Weber,* 251 Mo. 186, 157 S.W. 961 (1913).

The term "lot" is of indefinite meaning and may refer to any piece, division or parcel of land. *State v. Reynolds,* 281 Mo. 1, 218 S.W. 337 (1920).

Particular costs of improvement such as engineering and inspection need not be enumerated. *Pflueger v. Kinsey,* 320 Mo. 82, 6 S.W. 2d 604 (1928).

There are no hard and fast rules for the establishment of taxing districts that will not conflict with the constitution. *Bridges Asphalt Co. v. Jacobsmeyer,* 346 Mo. 609, 142 S.W. 2d 641 (1940). Part of a lot may be included in a district. *Bridges Asphalt Co. v. Jacobsmeyer,* 346 Mo. 609, 142 S.W. 2d 641 (1940).

Parts of nonpaved highways are properly excluded from assessment. *Bridges Asphalt Co. v. Jacobsmeyer,* 346 Mo. 609, 142 S.W. 2d 641 (1940).

A lot may be assessed according to usage if different from official plot. *Granite Bituminous Paving Co. v. McManus,* 144 Mo. App. 593, 129 S.W. 448 (1910).

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: repeals Section 10, enacts new Section 10, relating to levying and assessment for improvements.

Voter Adoption Date: April 5, 1927.

Section 11 Alleys.

Ordinances for the improvement of alleys, which may include grading, regrading, preparing roadbeds, placing foundations, repaving, resurfacing and reconstruction of alleys, all intersections of alleys and the crossing of sidewalks in the continuation of alleys, shall provide for payment therefor by special assessment, as follows: One-fourth of the entire cost shall be levied and assessed against the lots or parcels of ground abutting on the work or improvement ratably by lineal feet so abutting, and the remainder of the cost shall be levied and assessed ratably by area against all the lots or parcels of ground abutting on such alleys or having access thereto, exclusive of public highways. Nothing

herein contained shall be construed as invalidating ordinances for public work ordained prior to the enactment of this amendment, and contracts hereafter made in pursuance of such ordinances shall be valid, notwithstanding anything to the contrary herein contained.

City Counselor Ops.: 9929

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: changing levying percentage for alley improvements.

Voter Adoption Date: April 5, 1927.

Section 12 Sidewalks.

Ordinances for the grading and preparing for and placing the superstructure of sidewalks, or for the repaving or reconstruction thereof, with necessary intersections, shall provide for payment therefore [therefor] by special assessment, as follows: The entire cost shall be levied and assessed against the lots or parcels of ground abutting on the work or improvement, the amount to be assessed against each lot or parcel of ground to be the cost of the actual work done in front of, adjoining or bordering on said lot or parcel of ground; provided, however, that such sidewalk ordinances may provide for the payment of a portion of such cost by the city, and for the assessment of the remainder thereof against the property abutting on said improvement, in the manner specified; and provided, further, that ordinances for grading, regrading or for the improvement or reconstruction of any public highway, street, boulevard, or parkway, may include, as a part thereof, the cost of grading and regrading of the sidewalk spaces thereon, in which case the cost of grading and regrading of the sidewalk spaces shall be a part of the cost of improving or reconstructing such public highway, street, boulevard, or parkway, and shall be assessed in the manner provided in Section Ten of this article. Nothing herein contained shall be construed as invalidating ordinances for public work ordained prior to the enactment of this amendment, and contracts hereafter made in pursuance of such ordinances shall be valid, notwithstanding anything to the contrary herein contained.

City Counselor Ops.: 8081, 8675, 9132, 9135, 9498, 9683, 9838, 10015

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: changing levying procedure for sidewalks regarding property owners and City.

Voter Adoption Date: April 5, 1927.

Section 13 When reconstruction costs to be borne by city.

At least one-fourth of the cost of reconstruction of any public highway, street, boulevard, parkway, sidewalk or alley done within ten years after the same has been fully paved shall be paid by the city.

Section 14 Classification of sewers.

There shall be four classes of sewers, viz: public, district, joint-district, and private sewers, as hereinafter defined, but otherwise without regard to the area drained, the size, character, or purpose of the sewer.

Public sewers are those which have been or may be constructed or acquired and paid for wholly out of general revenue.

District sewers are those which have been or may be constructed or acquired, under authority of ordinance, within the limits of an established sewer district, and paid for by special assessments upon the property in the district.

Joint-district sewers are those which have been or may be constructed or acquired under the authority of ordinances uniting one or more districts and unorganized territory, or uniting districts or unorganized territory, into a joint sewer district, for the purpose of providing main, outlet or intercepting sewers, for the benefit of such joint sewer district, and paid for by special assessment upon the property in such joint sewer district.

Private sewers are those paid for by private parties constructing the same.

Cases:

Sewer may be built large enough to contain water outside sewer district that endangers property within sewer district. *Jennings Heights Land and Imp. Co. v. City of St. Louis,* 257 Mo. 291, 165 S.W. 741 (1914).

Section 15 Location and connection of sewers.

All public, district and joint-district sewers shall be constructed along streets, alleys and other public ways whenever practicable; and no such sewer shall be built or acquired by the city except it be on a public way or a right-of-way owned by the city. Such sewers may be connected with any other sewer of any class or with a natural course of drainage.

Section 16 Levy and assessment of special tax for sewers.

All ordinances for constructing, reconstructing or acquiring district and joint-district sewers shall provide for payment thereof by special assessment as follows: The entire cost and expense shall be levied and assessed as a special tax ratably by area on all the lots or parcels of ground within the district or joint-district, excluding public highways only.

Ordinances creating a joint-sewer district [joint-district sewer] may provide for the construction of the sewer or sewers therein in one or more sections and for the levy and assessment of the cost of any section upon the completion thereof as a special tax in the manner herein provided.

If any district or joint-district sewer shall drain territory lying outside the city limits and not included in the district or joint-district, the city shall pay so much of the cost of such sewer as would have been assessed ratably against such territory if it were included in the district or joint-district.

Cases:

The term "lot" is of indefinite meaning and may refer to any piece, division or parcel of land. *State v. Reynolds,* 281 Mo. 1, 218 S.W. 337 (1920).

No notice to owners of the establishment of a taxing sewer district is necessary. *St. Louis Malleable C. Co. v. George G. Prendergast Const. Co.,* 288 Mo. 197, 231 S.W. 989 (1921).

Where a plat with numbered lots has been filed, an assessment for special improvements according to the numbers filed is proper. *Parker Washington Co. v. Bradley,* 197 Mo. App. 447, 196 S.W. 111 (1917).

Section 17 Acquisition of private sewers by city.

The city may by ordinance recommended by the board of public service acquire any private sewer by gift, condemnation or purchase, and provide for reimbursement by special assessment in the manner hereinbefore provided to be levied against the property in the district or joint-district for which such private sewer is acquired; and an ordinance making a private sewer or any part thereof a part of a proposed district or joint-district sewer may provide that the contractor shall pay for such private sewer at the priced [price] fixed in such ordinance and the cost thereof shall be included in the total cost of constructing such district or joint-district sewer.

Section 18 Special tax bills to be issued on completion of work.

When any public work or improvement, to be paid for in whole or in part by special assessment, is completed, the board of public service shall cause the entire cost and expense thereof to be computed, and shall levy and assess such cost and expense or the part to be paid by special assessment, as a special tax, in accordance with the requirements of this article, and shall cause to be issued a special tax bill against each lot or parcel of ground liable in the manner provided by article XXIII, or by ordinance not inconsistent therewith.

City Counselor Ops.: 9929

Cases:

Particular costs of improvement such as engineering and inspection need not be enumerated. *Pflueger v. Kinsey,* 320 Mo. 82, 6 S.W. 2d 604 (1928).

The term "lot" is of indefinite meaning and may refer to any piece, division or parcel of land. *State v. Reynolds,* 281 Mo. 1, 218 S.W. 337 (1920).

Section 19 Reconstruction or alteration of district and joint-district sewers.

Should it be necessary for any reason to reconstruct any district or joint-district sewer, the board of aldermen, by ordinance recommended by the board of public service, may establish the same or a different district for such reconstruction. It may also alter any district or joint-district at any time before the construction of the sewers therein is completed.

Section 20 Construction, repair and maintenance of private sewers.

Private sewers shall be constructed, repaired and maintained and connected with other sewers at private expense under such restrictions and regulations as the board of public service may prescribe, the city reserving the right to connect with, utilize and acquire such sewers.

Section 21 Public improvements by individuals—Permit required.

The board of public service may grant permits for the improvement of public highways, streets, boulevards, parkways, alleys and sidewalks by property owners, and such improvement shall conform to the established or proposed grades and to specifications approved by the board. Such permit shall specify that the grantee thereof shall not be entitled to any credit or rebate from tax bills which may be issued for further improvement of the public highway, street, boulevard, parkway, alley and sidewalk, when carried out under the provisions of this charter, on account of any improvements that he may make in pursuance of such permit.

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: Section 21: private owners of property granted permits for public improvements to conform to City plan and not allowed credit or tax rebates for cost.

Voter Adoption Date: April 5, 1927.

Section 22 Utilization by city of material put into improvement.

Any part of the work or material put into the improvement of a public highway, street, boulevard, parkway, alley or sidewalk, which is usable and conforms to the city's plans for the further improvement of the public highway, street, boulevard, parkway, alley or sidewalk may be used by the city in its further improvement thereof. If such work or material shall have been put into such improvement in pursuance of a permit, as provided in Section Twenty-one hereof, the grantee of such permit, his assigns or successors in title shall not become entitled to any credit or rebate for the use of such work or material in the issuance of special tax bills for the cost of such further improvement.

History:

Submission Ordinance No. 35368

Submission Ordinance Approved November 24, 1926.

Amendment Substance: Section 22 City may use work or materials for public improvements and private permittee or assigns not allowed credit or rebate therefor.

Voter Adoption Date: April 5, 1927.

Section 23 Insufficient and excessive assessments.

The ordinance for any public work or improvement may require the board of public service to levy the special assessment therefor immediately upon such ordinance becoming effective, such assessment to be based on the estimated cost and expenses of such work or improvement; and should any assessment so levied be insufficient to pay the entire cost and expenses of the work or improvement required to be paid for by special assessment, the board of public service shall, on the completion of the work or improvement, levy a supplemental special assessment to pay the deficiency, in the same manner as nearly as may be as in the first special assessment; and should the whole of the original special assessment not be required to pay the cost and expenses of the work or improvement, the excess shall be credited ratably on the special tax bills or refunded to the parties who paid them.

Article XXIII

SPECIAL TAX BILLS

RSMo:

RSMo Ch. 88 (2016) Public works and special assessments therefor

City Counselor Ops.: 8049, 9135

Cases:

Proceedings under this article are in nature of proceedings in rem. *Alexander v. Haffner,* 323 Mo. 1197, 20 S.W. 2d 896 (1929).

McQuillin:

38.155—38.159 Bonds, Certificates, Warrants or Special Tax Bills

Section 1 Preparation, certification and delivery.

For all special assessments for public work or improvements under this charter and ordinances adopted in pursuance thereof, special tax bills shall be prepared and signed by a person designated by the board of public service by resolution entered on its records and shall be made payable to the parties entitled, either at the collector's office or at some bank or trust company in the city, at the option of the party so entitled. They shall be promptly registered and certified both in the office of said board and of the comptroller by persons designated by said board and by the comptroller respectively to make such registration and certificate, and then delivered by the comptroller to the parties entitled and their receipts taken therefor; and the city shall not be liable in any manner for any work or improvement to be paid for in special tax bills.

City Counselor Ops.: 8713

Cases:

Failure to state the statutory place of payment is a mere technicality and does not invalidate the bill. *Granite Bituminous Paving Co. v. McManus,* 244 Mo. 184, 148 S.W. 621 (1912).

The signatures of the comptroller and the president of the board of public service do not validate a special tax bill. The necessary signatures are defined explicitly in this section. *Bates v. Comstock Realty Co.,* 306 Mo. 312, 267 S.W. 641 (1924).

Section 2 Installments authorized; maturity.

Any special tax bills may be divided, if the ordinance authorizing the particular work or improvement so provides, into any number of equal annual installments, not to exceed ten, whereof the first shall be due upon service of the notice hereinafter provided for or upon a "not found" return by the marshal as hereinafter

mentioned, and the other installments successively on the corresponding day of each subsequent year, with interest payable annually on each installment at the rate of six per centum per annum from such notice or "not found" return until maturity or prior payment and at the rate of eight per centum per annum after maturity.

All such special tax bills not payable in installments shall mature upon notice or "not found" return as aforesaid and draw interest at the rate of eight per centum per annum after maturity; provided, that the entire bill or any number of installments may be paid within thirty days after such notice or "not found" return without any interest.

City Counselor Ops.: 8919

Cases:

The interest is computed from the date of maturity of the various installments. *Everymann v. Stevens,* 185 Mo. App. 168, 170 S.W. 330 (1914).

Notice is required to fix the dates of maturity of the several installments. *Bates v. Schwenker,* 3 S.W. 2d 277 (1928).

Section 3 Service of notice of issuance; return.

The owner of any special tax bill shall serve a written notice of the issuance thereof on the parties named therein, or the city marshal at such owner's request shall serve such notice and make return of such service in the manner provided as to writs of summons in civil causes; and he shall receive therefor the fees then allowed for serving such writs. Such marshal's return shall be conclusive of the facts therein stated, and any person injured by a false return on any such notice shall have his right of action for damages resulting therefrom against the marshal on his official bond.

Cases:

Place of payment need not be stated in the notice. *Granite Bituminous Paving Co. v. McManus,* 244 Mo. 184, 148 S.W. 621 (1912).

The notice does not have to contain a legal description of the property. *Schneider Granite Co. v. Gast Realty and Investment Co.,* 259 Mo. 153, 168 S.W. 687 (1914).

Unverified statement service is not competent proof. *Parker-Washington Co. v. Dodd,* 305 Mo. 171, 264 S.W. 651 (1924).

Under this section the court made no error in excluding testimony offered to contradict the return of the marshal. *Bambrick Bros. Const. Co. v. McCormick,* 157 Mo. App. 198, 137 S.W. 43 (1911).

Section 4 Effect as evidence of liability.

All special tax bills shall be prima facie evidence of what they contain and of their own validity, and no mere informality or clerical mistake in any of the proceedings leading to the issuance of or in any special tax bill shall be a defense thereto; provided that if the work was not done in a good workmanlike manner according to the class of work mentioned in the contract the property charged with the payment of said bill shall be liable only for the value of such work done, and the recovery on the special tax bill shall be reduced accordingly.

City Counselor Ops.: 10118, 10219

Cases:

The matters of which the tax bill is prima facie evidence must be proved aliunde against an owner not named therein. *McCormick v. Clopton,* 150 Mo. App. 129, 130 S.W. 122 (1910).

Under this section tax bill will be judged valid against claim that assessment was improperly made. *Granite Bituminous Paving Co. v. Parkview Realty and Improvement Co.,* 168 Mo. App. 498, 151 S.W. 487 (1912).

A special tax lien is not prima facie evidence of a lien against the property to a mortgagee not named therein. *Granite Bituminous Paving Co. v. Parkview Realty and Improvement Co.,* 199 Mo. App. 226, 201 S.W. 933 (1918).

A petition stating a cause of action on a special tax bill and proof in conformity thereto constitutes a prima facie case. *Central Paving and Const. Co. v. Eighth and Morgan G. and F. S.,* 159 S.W. 2d 604 (1941).

Section 5 Lien; priority; legal remedies for collection.

All special tax bills shall be a first lien on the property charged therewith from the day of issuance thereof; provided, there shall be no priority between special tax bills issued under this charter, regardless of the date of such bills.

The entire bill or any installment thereof, together with interest, may be collected by action in any court of competent jurisdiction; and such action may be brought by attachment when the owner of the land affected is a nonresident of the state or after a "not found" return is made by the city marshal on any such notice, in either which event the suit shall be equivalent to notice and demand of payment.

City Counselor Ops.: 9929

Cases:

The lien of the special tax bill like the lien for general taxes is superior to other encumbrances on the land. *Morey Engineering and Const. Co. v. St. Louis A. Ice Rink Co.,* 242 Mo. 241, 146 S.W. 1142 (1912).

As between two tax bills, the earlier in time has priority over the latter unless otherwise indicated. *Parker-Washing-*

ton Co. v. Corcoran, 150 Mo. App. 188, 129 S.W. 1031 (1910).

The lien of a benefit judgment is a tax lien and governed by the rule of reverse priorities. *Stiers v. Vrooman,* 234 Mo. App. 161, 115 S.W. 2d 84 (1938); *City of St. Louis v. Wall,* 235 Mo. App. 9, 124 S.W. 2d 616 (1939).

Section 6 Right of acceleration; interest on judgment.

If any installment of any special tax bill or any interest thereon be not paid when due, then all remaining installments, together with interest thereon as aforesaid, shall, at the option of the holder if exercised by suit thereon, immediately become due; and a judgment on such bill shall bear interest at the rate of eight per centum per annum.

Section 7 Assignment and change of place of payment.

Special tax bills and the lien thereof may be assigned and the place of payment thereof changed to the office of the collector or to any bank or trust company in the city. But any such assignment or change of place of payment to be valid must be in writing, countersigned by the comptroller or by one of his deputies, acknowledged before an officer authorized to take acknowledgments, and registered in the office of the comptroller.

Section 8 Receipt of payments by collector; bills to be marked satisfied; expiration of lien.

It shall be the duty of the collector to receive payment of all special tax bills made payable at his office and thereupon deliver the same receipted; and he shall, upon warrants of the comptroller, pay over all such collections to the parties entitled. The persons paying any such bill shall be entitled to have the same satisfied on the register in the comptroller's office, in whole or in part, as the case may be, immediately on presentation to the comptroller of either the receipted tax bill or a receipt from the collector or the proper bank or trust company showing such payment thereof; and the lien of any bill shall cease and be of no effect against the land charged therewith at the end of two years after the maturity of the bill or the last installment thereof, unless proceedings at law shall then be pending to collect the same, and written notice of the institution thereof setting forth when and in what court such proceedings were brought shall have been filed in the office of the comptroller within ten days after the institution of such suit.

Cases:

This section applies to special tax bills issued for improvements and does not apply to special tax bills issued for benefit assessments. *Pleadwell v. Missouri Glass Co.,* 151 Mo. App. 51, 131 S.W. 941 (1910).

The two-year period not merely bars action but limits the existence of the lien. *Granite Bituminous Pav. Co. v. Parkview Realty and I. Co.,* 199 Mo. App. 226, 201 S.W. 933 (1918).

Section 9 Ordinance ratifying irregularities.

If any ordinance authorizing a public work or improvement or fixing a benefit or taxing district, shall be irregular, defective or invalid by reason of any omission, error or irregularity therein or in the proceedings leading to its adoption, or if for any reason it shall be necessary to the validity of any special assessment, the board of aldermen may, on recommendation of the board of public service, adopt an ordinance ratifying all things done under or in pursuance of the original ordinance, and supplying, correcting and curing all such omissions, errors, defects and irregularities, and making such special assessment valid.

Section 10 New assessment to be made and tax bills issued where original assessment invalid.

Where public work or improvement has been done under an ordinance providing that it should be paid for by special assessment and the whole or part of such special assessment has been adjudged invalid for any reason other than the failure of the contractor to perform his contract, the board of public service shall levy a new assessment and evidence the same by tax bills in the same manner and with like effect as if validly done hereunder in the first instance.

Section 11 Amendment of assessment and tax bills.

Special assessments or tax bills evidencing the same may be amended by the officer or officers authorized at the time to prepare special tax bills or by the courts in proceedings to enforce the same, to correct or supply descriptions, names and other errors, omissions and irregularities on the part of the city, and may be divided by said officer or officers at the request of any of the parties concerned according to divisions of the property made subsequent to the bills being prepared, and without affecting the interest on such amended or divided bill.

Section 12 Additional provisions authorized.

The city by ordinance recommended by the board of public service may, from time to time, make further provision by ordinance, not inconsistent with this charter, for special assessments, the issuance of special tax bills therefor, the collection thereof, and all matters incidental thereto.

City Counselor Ops.: 9929

Article XXIV

IMPROVEMENT BONDS AND FUNDS

Section 1 Issuance; source of payment; provisions to be supplied by ordinance.

The board of aldermen, by ordinance recommended by the board of public service, in anticipation of the collection of a special assessment for any public work or improvement, may provide for the issuance of improvement bonds to be delivered to the contractor in payment for so much of the work or improvement as is payable by such special assessment or to be sold by the city and the proceeds paid to the contractor in full for such work and improvement; provided, the city shall not be liable either to pay such bonds or to pay for such part of the work or improvement, but the bonds shall be paid only out of the particular special assessment in anticipation of which they were issued, and no such issue shall be in excess of the cost and expenses or estimated cost and expenses of the work and improvement and the interest on the bonds, which may be treated as a part of such cost, and all proceeds of said bonds shall be applied in payment of the cost and expenses of such work and improvement.

If the special assessment in anticipation of which such bonds are issued shall be payable in equal annual installments the particular bonds shall be payable serially, each series maturing with approximate regard to the several maturities of such installments; and all such special assessments shall be collected promptly by the city at its expense and applied, whenever sufficient thereto after paying accrued interest on all such issue of bonds, to the redemption of any one or more of such bonds in numerical order at maturity.

The form and denomination of such bonds; the date of maturity or maturities thereof, not to exceed eleven years in any instance; the rate of interest thereon and the date and place of its payment; the price at which they shall be sold, if to be sold; by what officers and in what manner they shall be executed and attested; and the place and method of payment, save only the fund out of which payment shall be made, together with other provisions and regulations concerning such bonds and not inconsistent herewith, shall be prescribed by the ordinance authorizing the particular issue.

McQuillin:

37.193—37.209 Improvement Bonds

Section 2 Appropriations for payment from general revenue.

The board of aldermen, by ordinance recommended by the board of public service, may appropriate out of the general revenue sufficient money to pay, or to provide a fund in advance to pay, such part of any improvement bond issue as the proceeds of special assessments securing same may prove insufficient to pay as they become due, not exceeding ten per centum of the amount of such bond issue, and provide for reimbursement, if possible, out of the proceeds of such special assessments after all such bonds and interest have been fully paid.

City Counselor Ops.: 8106

Section 3 Local improvement fund authorized.

The board of aldermen may, by ordinance recommended by the board of public service, provide for the creation of a local improvement fund out of which the city shall pay in cash, to contractors or otherwise, the cost and expense of local improvements, and for the levy, assessment and collection of special assessments to cover cost and expenses, the proceeds of which assessments shall be paid into such fund or funds.

Cases:

A municipal auditorium is not a local improvement. *City of St. Louis v. Pope,* 344 Mo. 479, 126 S.W. 2d 1201 (1938).

Section 4 Appropriation of fund for payment as work progresses.

For the purpose of anticipating the levy and collection of any special assessment for any public work or improvement, the board of aldermen may, by ordinance recommended by the board of public service, appropriate a fund to pay for the work or improvement as it progresses, and reimburse the city either by the issue and sale of local improvement bonds, as in this article provided, or by the collection of such special assessments.

Cases:

Under this section the city may issue special tax bills

payable to itself and property owners still retain the right to defend against the tax bills. *City of St. Louis v. Nicolai,* 321 Mo. 830, 13 S.W. 2d 36 (1928).

Section 5 Special tax bills issued under provisions of this article.

All special assessments contemplated by this article shall be evidenced by special tax bills in accordance with the provisions of article XXIII, so far as applicable, such bills to be made payable to the city, which shall be deemed the owner thereof, at the office of the collector, to whom the comptroller shall deliver the same and take his receipts therefor. The marshal shall serve the notice of the issuance of such bills and make return of such service without receiving any fees therefor.

Article XXV

MISCELLANEOUS PROVISIONS

City Counselor Ops.: 10291

Section 1 Changes in administrative provisions.

The board of aldermen may by ordinance adopted by vote of two-thirds of all the members, on the recommendation of the board of estimate and apportionment, discontinue any division established by this charter, create new or additional divisions, and determine, combine and distribute the functions and duties of divisions, officers and employes.

City Counselor Ops.: 8199, 8201, 8401, 9658, 9911, 10085

Cases:

The board may not transfer the duties of a city officer to his assistant. *State v. Reber,* 226 Mo. 226, 126 S.W. 397 (1910).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 2 Taxation of raw materials and finished products, tools and machinery, and sales.

The raw material and finished products of manufacturers in the city, as well as all tools, machinery and appliances used by them and the stock in trade and appliances of merchants in the city, may be taxed as a separate class under the laws of the state and a lower rate may be levied by the city on such property so classified than on real estate and other property, and the city may by ordinance levy a tax upon the sales made by manufacturers and merchants in the city.

Section 3 Assessments for planting shade trees and removal of snow, ice, rubbish and weeds.

The board of aldermen may provide by ordinance for assessing against the abutting property the cost of planting shade trees and of removing from sidewalks accumulations of snow, ice and earth and for assessing against property the cost of cutting and removing therefrom noxious weeds and rubbish.

City Counselor Ops.: 9861

Section 4 Approval of official bonds; faithful performance required.

Unless otherwise provided in this charter all bonds shall be approved as to their sufficiency by the comptroller. The bond of the comptroller as to its sufficiency shall be approved by the mayor. All official bonds shall, among other things, be conditioned for the faithful performance of the duties of the office. For any breach of the condition of any bond, suit may be instituted thereon by the city, or any person or persons in the name of the city, for the use of such person or persons.

City Counselor Ops.: 1019

Section 5 When additional official bond required.

If at any time it appears to the mayor or comptroller that the surety or sureties of any official bond are insufficient, he shall require the officer or employee to give additional bond, and, if such officer or employee fails to give such additional bond within ten days after he shall have been notified, his office shall be vacant.

Section 6 Mayor's contingent fund.

A contingent fund shall be provided by ordinance for the mayor, to be used by him at his discretion, and at the end of his term he shall make a report in general terms to the board of aldermen of the disposition thereof.

Section 7 Construction of title "board of election commissioners."

Any reference in this charter to the board of election commissioners shall be taken to include any board or persons having charge of elections in the city.

Section 8 Appeals by city in judicial proceedings.

The city in taking an appeal in any judicial proceeding shall give bond as required by law, but need not furnish security therefor.

Section 9 Execution of city's contracts.

All contracts relating to city affairs shall be in writing, signed and executed in the name of the city. In cases not otherwise provided by law or ordinance, they shall be made by the comptroller, and in no case by the board of aldermen or any committee thereof. Contracts not made by the comptroller shall be countersigned by him, and all contracts shall be filed and registered by number, date and contents with the register.

City Counselor Ops.: 7825, 8010, 8157A, 8622, 9016, 9844, 9987

Cases:

A contract, not for an emergency, and not complying with the provisions of this section, did not bind the city. *West Virginia Coal Co. v. City of St. Louis,* 324 Mo. 968, 25 S.W. 2d 466 (1930).

The fact that the comptroller must countersign contracts does not give him the right to make contracts. *Kirby v. Nolte,* 349 Mo. 1015, 164 S.W. 2d 1 (1942).

Right to compensation of superintendent of hospital rested upon ordinance, not contract. *McCellan v. City of St. Louis,* 170 S.W. 2d 131 (1943).

City employees lacked standing as taxpayers to challenge the city's actions in contracting out acute care and long term health services where they failed to show that the city's actions would necessarily result in the loss of revenue to the city or in an increased tax burden and where, in fact, the city's actions would save a substantial amount of money in the foreseeable future. *Brock v. City of St. Louis,* 724 S.W. 2d 721 (1987), overruled by *Eastern Missouri Laborers Dist. Council v. St. Louis County*, 781 W.W.2d 43 (Mo. 1989).

Physicians who, having been offered positions as physicians-in-training and who were assured by city officials that if their work was satisfactory they would advance and complete the program, and who were a special class of civil service employees in the classified civil service, did not have a constitutionally protected property interest to continued employment which entitled them to damages against the city when the city closed the medical program due to budget restrictions, financial exigency and other reasons. *Kennedy v. City of St. Louis,* 749 S.W. 2d 427 (Mo. App. 1988).

History:

Submission Ordinance No. 66330

Submission Ordinance Approved July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 10 City records to be open to mayor, comptroller and board of aldermen.

All books, records and papers in any department, office or division shall be open to the mayor, comptroller or any committee of the board of aldermen.

History:

Submission Ordinance No. 66330

Submission Ordinance Approval July 23, 2004.

Amendment Substance: restructures city finance offices and functions.

Voter Rejection Date: November 2, 2004.

Section 11 City surveyors.

The mayor may appoint any number of civil engineers as city surveyors for a term of four years, whose duties and powers shall be as provided by law in regard to county surveyors. Each city surveyor shall when appointed give bond to the city for fifteen thousand dollars, conditioned for the faithful performance of his duties. Such bond may be sued upon by any person injured by the official acts of such surveyor.

City Counselor Ops.: 8103

Section 12 Where city's notices, etc., published.

All publications not otherwise herein provided for shall be published in the paper or papers having the contract to do the city publishing at the time.

Section 13 City marshal to execute process for boards and officers.

Any board or officer authorized by this charter to subpoena witnesses and order the production of books and papers shall have the services of the city marshal to execute process, and provisions shall be made by ordinance for punishing failure to obey any such subpoena or order.

Section 14 Maximum work day and minimum wage for mechanics and laborers.

Except in case of emergency, not to exceed eight hours shall constitute a day's work for all mechanics and laborers employed by the city, and not less than the prevailing rate of wages shall be paid.

Section 15 Construction of word "office."

Where the word "office" is used in this charter to indicate a branch of the city government, it shall be construed to refer to any branch not in or under any

department, and shall include the office of the mayor, register, marshal, city court judges and clerk of the city courts.

City Counselor Ops.: 8234, 9120

Section 16 Construction of words "person" or "persons."

Unless the context indicates a different intent and except when referring to a person holding an office of employment under the city, the words "person" or "persons" in this charter will be construed to include person, firm, corporation, company or association, and the plurals thereof.

Section 17 Ordinances in aid of state law.

The board of aldermen may by ordinance make any provision necessary to carry into execution the laws of the state relating to state, school, city and other revenue, and any power, duty or trust under any of the laws of the state, vested in or imposed upon any body or officer of any county or of this city by the laws of the state may be exercised by such body or officer of the city as may be provided by ordinance consistent with the provisions of this charter.

City Counselor Ops.: 9953

History:

Submission Ordinance No. 66329

Submission Ordinance Approved July 23, 2004.

Amendment Substance: reorganizes certain city offices.

Voter Rejection Date: November 2, 2004.

Article XXVI

CITY PARKS PROTECTION

Editor's Note: Amendment was voter approved to the Charter of the City of St. Louis enacting a new Article XXVI requiring voter approval of land transactions concerning City parks.

Section 1 Real estate for use as a public park.

Any real estate, now or hereafter owned by the City or any agency or instrumentality of the City, which is principally used or held out for use as a public park, shall not be sold, leased, given away or otherwise disposed of, and shall be used only as a public park, nor shall any structure be built in any such park to accommodate activities not customarily associated with park use or outdoor recreation, unless such sale, lease, disposal, gift or structure is approved by a majority of the qualified electors voting thereon.

Section 2 Intention of board of aldermen.

The clerk of the board of aldermen shall certify to the board of election commissioners the intention of board of aldermen to authorize such sale, lease, disposal or change of use, together with the proposed ordinance for that purpose, to the board of election commissioners. Said board of election commissioners shall thereupon provide for submitting said proposed ordinance, in its original form, to the voters at the first election at which such submission may lawfully be had, but not less than thirty days after such certification to it by the clerk of the board of aldermen.

Schedule

(TRANSITIONAL PROVISIONS)

Section 1 Preservation of status quo.

All ordinances or parts thereof in force when this charter takes effect and not inconsistent therewith shall continue in force until amended or repealed; and all rights, actions, prosecutions and contracts of the city, or for its benefit, all recognizances, bonds, obligations and instruments entered into or executed to the city, all fines, taxes, penalties and forfeitures due or owing to the city, and all writs, prosecutions, actions and causes of action shall be valid and continue unaffected by this charter taking effect.

Section 2 Ordinances and proceedings as to public works validated.

All ordinances authorizing or contemplating the appropriation or damaging of private property for public use or authorizing public work or improvements in force when this charter takes effect, and all things done thereunder, shall remain valid, and subsequent proceedings thereunder, including those in pending condemnation proceedings, shall be conducted as nearly as practicable in accordance with the provisions of this charter.

Section 3 Assessment for taxation preserved.

Any assessment for taxation commenced before this charter takes effect shall be availed of and completed by the assessor and his deputies under this charter, and the same and any taxes based thereon shall be valid notwithstanding any change effected by this charter.

Section 4 New titles to be read for former titles.

Ordinances, or parts thereof, not inconsistent with this charter, referring to any present body, board, offi-

cer or employe, shall be construed to refer to the body, board, officer or employee having the same or similar powers or duties under this this charter or ordinances consistent therewith.

Section 5 Ordinances imposing fines validated.

Ordinances authorizing a fine or punishment greater than is permitted by this charter shall continue valid so far as to authorize a fine or punishment not exceeding the limitations of this charter.

Section 6 Legality of action by former boards and officers preserved.

Whenever any approval, order or action by any board or officer, discontinued by this charter, is required by any law or present ordinance as a condition precedent to any payment, commitment to any institution, or other action by any city officer, it shall be sufficient to obtain such approval, order or action from the body, board or officer having the same or similar power in the premises under this charter, and if there be no such board or officer, such approval, order or action may be secured from the mayor until otherwise provided by ordinance.

Section 7 Disposition of records, etc., of former boards and commissions.

It shall be the duty of all boards, commissions and officers whose powers or duties are vested in others by this charter to turn over all books, records, property and funds to such others, and if any board, commission or office be abolished without the duties thereof being vested in others, the incumbents thereof shall turn over all books, records, property and funds to the comptroller.

Section 8 Municipal assembly continued.

The present municipal assembly, with its present officers or such as the respective houses may lawfully choose under the present charter, shall continue until the first Monday in April, 1915, with all the powers and duties given to the board of aldermen by this charter, and subject to its provisions; and until said date the provisions of the present charter with regard to the filling of vacancies in the office of mayor or the temporary performance of the duties of the mayor shall remain in force.

Section 9 Terms of office not saved to be abolished.

All terms of office of present officers and employes, except those terms expressly saved or continued by this charter, are abolished.

Section 10 Officers continued in new offices.

The present city officers mentioned in this section shall hold office under this charter and subject to its provisions, as follows: The present mayor, comptroller and city counselor shall hold the like offices; the present police justices and district assessors shall hold office as city court judges and deputy assessors, respectively; the present street, sewer, water, park, health and hospital commissioners, commissioner of supplies, and commissioner of public buildings, and chief of fire department shall hold office, respectively, as heads of the appropriate divisions created by this charter; the present president of the board of assessors, president of the board of public improvements, and inspector of weights and measures, shall hold office as assessor, president of the board of public service, and commissioner of weights and measures, respectively; and all other present incumbents of elective officers made appointive shall hold such appointive offices. Each such present city officer shall continue in the office above provided for him to hold until the end of the term for which he was elected or appointed and until his successor qualifies, with all the powers and duties given by this charter to such office.

Section 11 Officers continued in office.

The present jailer and all superintendents of institutions and the superintendent of fire and police telegraph shall continue in office subordinate to the head of the appropriate division and subject to the provisions of this charter.

Section 12 Continuance of terms of city surveyors.

The present city surveyors shall continue in office until the end of the terms for which they were respectively appointed.

Section 13 Office of auditor abolished.

The office of city auditor, as it at present exists, is abolished, but the present city auditor shall continue in office until the end of the term for which he was elected. In the meantime he and the deputies and clerks under him shall be part of the comptroller's office and under the control of the comptroller.

Section 14 Temporary law department.

The city attorneys' offices as such are abolished, but until the law department is organized in accordance

with this charter the city counselor's office and the city attorney's offices shall constitute the law department and be under the control of the city counselor.

Section 15 Status of offices created by ordinance.

All persons now occupying positions which are created solely by ordinance not inconsistent with this charter and which are not exempted from the efficiency provisions of this charter, including those mentioned in section 9 of article XVIII, and all persons occupying positions which are so created and which are exempted from said efficiency provisions by subdivisions (d) and (f) of section 3 of article XVIII, shall continue in such positions, each in the appropriate branch of the city government and subordinate to the proper head officer. Where transfers of duties are effected [affected] by this charter the mayor may transfer any of said officers and employees to conform thereto. Tenure of office or employment under this section shall be subject to this charter and the ordinances of the city.

Editor's note—Article XVIII of this charter has been amended since the passage of this section.

Section 16 Boards, commissions and officers abolished; exceptions.

All present boards, commissions and officers created by charter or ordinance and not provided for or authorized or expressly continued by this charter, are hereby abolished, save only the city plan commission, board of engineers and board of examiners of plumbers, which said commission and boards until abolished by ordinance shall hereafter be appointed by and under the control of the board of public service.

Section 17 Renewal and substitution of bonds.

The mayor may, and on the written advice of the city counselor shall, require any renewal or substitution of the official bond or security of any present officer or employee as a condition precedent to such officer or employee continuing in office; and any officer or employee failing to comply with any such requirement within fifteen days after being notified thereof shall thereby forfeit his office. It shall be the duty of the city counselor forthwith on this charter being adopted to examine all official bonds and securities and advise the mayor whether on account of any changes effected by this charter it will be necessary to require such bond or security to be renewed or substituted.

Section 18 Oath of office required of officers continued in office.

Every present city officer or employee who, if appointed or elected, would be required by this charter to take an official oath, shall take, subscribe and file such oath as provided in this charter.

Scheme

FOR THE SEPARATION AND REORGANIZATION OF THE GOVERNMENTS OF THE CITY AND COUNTY OF ST. LOUIS AND THE ADJUSTMENT OF THEIR RELATIONS

Editor's Note: The scheme was framed by a board of freeholders pursuant to the provisions of Const. (1875), art. IX, § 20, and was adopted by vote of the people of St. Louis on August 22, 1876. It went into effect on that date.

Consolidation of the City and County of St. Louis is authorized by Const. (1945), art. VI, § 30.

Adoption.

The following scheme for the separation of the governments of St. Louis city and county, the definition of the boundaries of said city as enlarged, the reorganization of the government of said county, and the adjustment of [the] relations between said city and county so that they shall hereafter be independent of each other, is hereby adopted as the organic law thereof.

The word "[the]" appeared in the original as "their."

Section 1 Boundaries of the City of St. Louis; territory of St. Louis County.

The boundaries of the City of St. Louis are hereby enlarged, settled and established as follows:

The corporate limits of the City of St. Louis shall comprise all that district of country situated in the County of St. Louis and State of Missouri, to-wit: Beginning at a point in the middle of the main channel of the Mississippi River and running thence westwardly at right angles to said channel to a point on the west bank of said river two hundred feet south of the center of the mouth of the River des Peres; thence westwardly and parallel to the center of the River des Peres and two hundred feet south thereof to the eastern line of the Lemay Ferry Road; thence westwardly to a point in the west line of said Lemay Ferry Road at its intersection with the center of the Weber Road; thence westwardly along the center of the Weber Road to its intersection of the east line of lot one (1) of the Carondelet commons south of the River des Peres; thence westwardly to the southeast corner of Rudolph Overman's or north-

east corner of B. H. Haar's land; thence westwardly to said Haar's northwest corner; thence northwestwardly to a point in the center of the Gravois Road six hundred (600) feet southwardly from the center of the bridge across the River des Peres; thence northwestwardly to the southeast comer of lot thirty-one (31) of the subdivision of the Mackenzie tract in United States survey one thousand, nine hundred, and fifty-three (1,953); thence northwestwardly in continuance of said last-mentioned line to the southern line of lot twenty-one (21) of the subdivision of the said Mackenzie tract; thence northwestwardly to a point in the southern line of United States survey two thousand and thirty-five, twenty-six (26) chains eastward from the southwest corner of said survey; thence northwardly to a point in the north line of the subdivision of East Laclede six hundred (600) feet west of the McCausland Road; thence northwardly and parallel with the center of the McCausland Road to a point on the Clayton Road six hundred (600) feet west of its intersection with the McCausland road; thence northwardly and parallel with the Skinker Road and six hundred (600) feet west thereof to its intersection with the old Bonhomme Road; thence northeastwardly to the intersection of the center line of McLaran Avenue and Mead Street; thence in a northeastwardly direction to a point in the Bellefontaine Road six hundred (600) feet north of its intersection with the Columbia Bottom Road; thence northwardly and parallel with center line of the Columbia Bottom Road to the northern boundary line of the United States survey number one hundred and fourteen (114); thence eastwardly along said line to the center of the main channel of the Mississippi River; thence with the meanderings of said channel southwardly to the point of beginning; and the residue of what now constitutes the County of St. Louis shall hereafter be called St. Louis County.

City Counselor Ops.: 9427

Section 2 City and county declared separated; authority of county court annulled.

The City of St. Louis as described in the preceding section and the residue of St. Louis County as said county is now constituted by law are hereby declared to be distinct and separate municipalities, and all authority heretofore exercised by the county court of St. Louis County or any officer of said county is hereby forever abrogated and annulled except for the purposes and in cases as hereinafter provided.

Section 3 Election of officers for St. Louis County; judicial and representative districts established; county seat.

At the general election for state and other officers on the Tuesday next following the first Monday in November, 1876, and every two years thereafter, there shall be elected officers for St. Louis County as follows: A sheriff, who shall be ex-officio collector, coroner, assessor, treasurer; a clerk of the county court, who shall be ex-officio recorder of deeds; they shall hold their offices for the term of two years, and shall perform such duties as are now provided by law for such officers until their successors are duly elected and qualified; also, a public administrator, who shall be elected at said election and every four years thereafter and shall hold office for four years and perform the duties now prescribed by law. There shall also be elected at said election three justices of the county court, who shall constitute the county court of said county, and their powers, duties and terms of office shall be defined and governed by the general law at present applying to other counties in this state. And for that purpose the County of St. Louis as established by this scheme shall be divided into two districts by a line commencing at a point where the Clayton Road intersects the boundary between the City and County of St. Louis as established by this scheme and charter and running thence westwardly with the Clayton Road to the eastern boundary of Bonhomme Township as now established; thence north with the eastern boundary of said township to the Missouri River. So much of said county as lies north and east of said line shall constitute district number one, and so much of said county as lies south and west of said line shall constitute number two. One justice of the county court shall be elected by the qualified voters of each of said districts, and the presiding justice of said county court shall be elected at large by the qualified voters of said county. Said county shall be divided and numbered in the same manner into two representative districts, and until otherwise districted by law one representative in the general assembly of the state shall be elected by the qualified voters of each of said districts. Immediately succeeding the election in November, 1876, and when the result thereof is officially determined as hereinafter provided, the justices of the county court shall meet at James C. Sutton's house, on the Manchester Road, for the purpose of organizing the new government of the county, determining the bonds of the county officers, and making

such appointments as may be authorized by law. Said court may determine at what place in said county said court shall meet and the county offices be located until the question of a permanent seat of justice may be determined. And for that purpose the following persons shall be and they are hereby appointed commissioners, to-wit: Robert G. Coleman, William W. Henderson and Thomas J. Sappington, who shall, after the scheme goes into effect, select a suitable place for the county seat of said county and report such selection to the county court of said county, when it shall be the duty of said court to submit to the qualified voters of said county, at a special election to be ordered by said court, within six months from the filing of said report, the question as to whether the place so selected shall be the place for the permanent seat of justice of said county; and if a majority of the qualified voters of said county voting at said election shall be in favor of said location, then the same shall be and remain the seat of justice or county seat of such county; but if a majority of the qualified voters voting at such election shall be against such location, then the permanent seat of justice shall be established in the manner as at present provided by law in regard to new counties. There shall be elected at said election such justices of the peace and constables for the county as said county may be entitled to under existing laws, who shall hold their offices according to the general provisions of law applying to other counties in this state.

Section 4 Present county court to order election November, 1876; duties and responsibilities of court in connection with separation.

The present county court of St. Louis County shall order and make all necessary arrangements for the general state election in November next, and shall order at the same time the election of the justices and officers for St. Louis County as specified in the preceding section, and the members of the present county court thereof shall continue in authority and in the discharge of their present duties except as herein otherwise provided until the new county government is organized and the proper county officers as provided herein are commissioned and qualified, and thereupon their terms of office and that of clerk of said court shall cease, and the offices of justices of the county court and clerk of the said county court as now established shall be forever abolished; provided that nothing in this section shall relieve said court and its officers and employees from full responsibility for the management and custody of all interests and property of the County of St. Louis as constituted previous to the adoption of this scheme until a formal transfer of the same to the proper authority as herein provided has been effected.

Section 5 Election of sheriff, coroner and public administrator for city; duties and compensation.

It shall be the duty of the mayor of the City of St. Louis to order an election on the same day as the general election in November, 1876, and every two years thereafter, for a sheriff for the City of St. Louis and coroner for said city, who shall be elected by the qualified voters of said city and shall hold their offices for two years and until their successors are duly elected and qualified, and they shall be commissioned by the mayor. A public administrator for said city shall also be elected at the general election aforesaid and every four years thereafter, whose term of office shall be four years and whose duties shall be as provided by law. The official bond of said officers shall be fixed and determined by the municipal assembly in conformity with the constitution and laws, and pending such action the sheriff, coroner and public administrator shall give bond in such amounts as now required of like officers for the present County of St. Louis, with not less than two securities, owners of unencumbered real estate in the City of St. Louis, to be approved by the mayor; and said bonds, when so approved, shall be filed with the register; and said officers shall respectively perform within the city limits such duties as are now provided by law in regard to the sheriff, coroner and public administrator of St. Louis County and shall receive the same compensation allowed said officers of St. Louis County prior to the adoption of this scheme until otherwise provided by law. The coroner shall discharge the duties of sheriff in all cases in which coroners are authorized to discharge those duties by law.

Section 6 City marshal to assume duties of former county marshal.

The marshal of the City of St. Louis, in addition to his other duties, shall assume and discharge all the duties heretofore discharged by the marshal of St. Louis County within the limits of the City of St. Louis; and the present county marshal shall deliver to said city marshal all books, documents and property of every kind in his possession by virtue of said office except

such property as may properly belong to the reorganized county government, which shall be delivered to the sheriff of St. Louis County elected in November, 1876.

Section 7 County sheriff ex-officio collector; county clerk ex-officio recorder; present recorder to continue in office; election of city recorder.

The sheriff of St. Louis County, elected as provided in section 3, shall be ex-officio collector of the revenue of said county; and the clerk of said county court shall be ex-officio recorder of deeds for said county; and the present recorder of deeds for St. Louis County shall hereafter be known as recorder of deeds, and shall hold his office for his term as now prescribed by law, until his successor shall be elected and qualified; and at the general election in November, 1878, and every four years thereafter, a city recorder shall be elected by the qualified voters of the City of St. Louis.

Section 8 Assessment and collection of taxes under scheme.

The office of the president of the board of assessors is hereby declared a city office, and is placed under the control of the city government, but the president of said board shall cause the books and plats of said office to be divided and such portions thereof as exclusively refer to St. Louis County shall be delivered to the proper officer for the use of said county; but if this can not be done, or can be done only in part, then abstracts shall be made thereof and the cost of same paid out of the city treasury. The present state and county collector shall continue in office until the expiration of his official term, and thereafter his duties shall be discharged by the city collector, and upon this scheme going into operation the said state and county collector shall pay over all collections for city and county taxes levied for general purposes and for licenses collected within the city limits as herein extended and all county taxes for interest and parks to the treasurer of the City of St. Louis; and all collections for county and school taxes on property and licenses, except all county taxes for interest and parks, in St. Louis County he shall pay to the present county treasurer until the treasurer of said county is elected as provided for in section 3; and when that officer has duly qualified the present county treasurer shall pay over to him all such collections for the use of said county, and from and after the time the county treasurer of St. Louis County as constituted by this scheme is elected and qualified and during the continuance in office of said county collector he shall in like manner pay over all revenue collections above mentioned to the city and county treasurers respectively. At the close of his term of office he shall effect a settlement with the city and county authorities, and shall account for all tax bills placed in his possession, and shall turn over all uncollected bills in his possession as follows: To the comptroller all tax bills on property within the city limits as herein established and to the clerk of the St. Louis county court all tax bills on property outside of city limits. The office of county auditor as it at present exists is abolished, but that officer shall continue in office and be responsible on his bond until all books, documents, moneys and other property in his hands or under his charge by virtue of his office have been properly accounted for and turned over to the parties authorized by law to receive them. The assessment of property for the taxes of the year 1877 in the city as constituted by this scheme shall be made by the president of the board of assessors of the present County of St. Louis in the manner provided by law; said president shall keep a separate set of books for the property in the city as now constituted and for that in the enlarged limits of the city. As soon as the assessment books for the city and for the enlarged limits shall have been completed and corrected as required by law, they shall be turned over by said president with the other books and plats of his office to the proper officer of said city. After the assessment books have been corrected, the president of assessors shall make out a fair copy of the same and shall make an abstract of said books, showing the amounts of the several kinds of property taxed, specifying: First, the amount of all property within the old limits of the City of St. Louis; second, the amount of value of all property within the new or extended limits and outside the old limits and add thereto his certificate that the same contains a true and correct list of all taxable property in the City of St. Louis so far as he has been able to ascertain the same. Said abstract shall be certified by oath and delivered to the mayor of St. Louis on or before the fourth Monday of June, 1877. As soon as the assessor of St. Louis County shall be elected and qualified, the president of the board of assessors shall deliver to the said assessor the books, plats and all papers appertaining to the property of said county as herein provided, and it shall be the duty of

the assessor of said county to assess the property of said county in the same manner as now provided by law for other counties of this state.

Cross reference—See also § 23 of this Scheme.

City Counselor Ops.: 8199, 9691

Section 9 County court to transfer public buildings, moneys, etc., to city; employees to continue; mayor may retain or discharge appointees of court.

It shall be the duty of the present county court of St. Louis County to see that all buildings, money and other property belonging to the county which are placed under the control of the city under the scheme shall be formally and properly transferred. Said court shall cause all records, books, papers, etc., now in the office of said court to be turned over to the register, who shall duly schedule same and report the same for inspection of the mayor. All employees and officers now in the service of the county in connection with public institutions or otherwise under appointment of said court and within the limits of the City of St. Louis as herein established shall continue in the discharge of their duties under the present rules and regulations until notified to the contrary by the mayor of the city, who shall have authority to retain or for unfitness discharge such as he may deem necessary and to fill any vacancies that may occur until the municipal assembly can provide by ordinance for the government of such institutions and regulations of such service.

Section 10 Title to public buildings, parks, etc., transferred to city; assumption of county debt by city.

All the public buildings, institutions, public parks and property of every character and description heretofore owned and controlled by the County of St. Louis within the limits as extended, including the courthouse, the county jail, the insane asylum and the poorhouse, are hereby transferred and made over to the City of St. Louis, and all the right, title and interest of the County of St. Louis in said property and in all public roads and highways within the enlarged limits is hereby vested in the City of St. Louis and divested out of the county; and, in consideration of the city becoming the proprietor of all the county buildings and property within its enlarged limits, the city hereby assumes the whole of the existing county debt and the entire park tax; and the municipal assembly shall, as soon as practicable after the adoption of this scheme and charter, provide by ordinance for the management of the property and public institutions hereby placed under its charge.

Section 11 Municipal assembly to provide for payment of county debt.

The municipal assembly shall from time to time make provision by ordinance for the payment of the county debt, and interest thereon, as the same matures, and in all respects said debt shall be considered a city debt, and shall be transferred to the books of the city, and embraced in all official statements of its funded liabilities.

Section 12 City officers to qualify under charter; election of municipal assembly; city offices to be filled April, 1877.

Until provision is made by ordinance for carrying out the provisions of the preceding sections, and until the officers provided for under the charter framed and adopted by this board are elected and qualified, and after this scheme and the charter framed hereunder go into operation, the present city officers shall qualify under such charter and perform all duties and exercise the powers of their office under such charter, except as otherwise provided in this scheme and charter, and under the ordinances of the city not inconsistent therewith within the enlarged city limits. For the purpose of electing a municipal assembly under such charter, an election for members of the municipal assembly shall be held at the same time as the general state election to be held in November, 1876, and the term of office of the members of said assembly shall continue for the same time and on the same condition as if the same commenced after the city election in April, 1877, as provided for in such charter; provided, that in case of vacancy in the office of the mayor, the present comptroller of the city shall be authorized to act and shall act as such mayor until such vacancies shall be filled as provided in the charter framed under this scheme; and provided further, that all city officers, except the municipal assembly and such offices whose incumbent are specifically continued in office til [until] the expiration of their term by this scheme and charter, and all appointive offices of the city or of any of its departments, shall be vacant from and after the city election provided for in the charter to be held in April, 1877, and shall be filled by the officers then elected and by appointments by the mayor, and officers then elected as in such charter prescribed.

Section 13 Ascertainment of county's financial condition; settlement of accounts.

A board of finance is hereby created, to consist of the mayor and comptroller of the City of St. Louis and the justices of the county court from the fifth and sixth districts of St. Louis County, whose duty it shall be immediately after this scheme goes into operation to examine and verify the county indebtedness as the same existed at the time this scheme went into operation on the books of the county as to bonds and all other claims and to ascertain and declare the amount necessary for the payment of the current expenses of the county to such time and to ascertain the balance of cash, after deducting the amount necessary for the payment of such current expenses in the hands of the county treasurer and the source whence derived. And all collections made on account of taxes for interest and the parks and that portion of said balance which was collected for general purposes within the extended city limits shall be paid into the city treasury; and that portion which was collected for general purposes within the County of St. Louis as constituted by this scheme shall be paid into the treasury of said county; and the same course shall be pursued with reference to all moneys coming into the hands of the present county treasurer after this scheme shall go into operation. The term of the present county treasurer shall cease when the treasurer for the County of St. Louis as herein constituted shall have been elected and qualified. The county auditor shall properly account for all school moneys for which he is in any way responsible to the proper authorities, and all tax collections for school purposes made either by the City or County of St. Louis for the present or any other year shall be applied only to the support of public schools. All debts and obligations due or payable or belonging to the present County of St. Louis shall be considered due and payable to the City of St. Louis; and the right to sue for and to adjust and collect same or any part thereof shall be vested in such city. The amount above ascertained for the payment of current expenses shall be paid in the manner provided by law out of the sum above reserved for such purpose.

Section 14 Metropolitan police.

The metropolitan police force of the City of St. Louis as now established by law shall be maintained at the cost of the City of St. Louis; provided, however, that the metropolitan police of the City of St. Louis shall have the same power and jurisdiction in the County of St. Louis as constituted by this scheme as now provided by law; provided, that upon a petition of the county court of St. Louis County the board of police commissioners shall appoint and equip not more than twenty policemen as provided in the act approved March 13, 1867, for duty in said county. The cost of equipping and maintaining said police shall be paid by the county as herein established.

Section 15 Justices of the peace and constables; bonds of constables and notaries.

Until otherwise provided by law, all the present justices of the peace and constables shall hold their offices until the expiration of their present terms, and only such justices and constables shall be elected in November, 1876, as may be necessary to fill vacancies. All commissions of justices of the peace and constables elected in the City of St. Louis shall be issued by the mayor, and a record thereof kept by the city register. All bonds of constables and of all notaries public appointed, shall be approved by the mayor, and a record of the same shall be kept in said register's office.

Section 16 City and county surveyors.

The mayor of the City of St. Louis, with the approval of the council, may appoint any number of competent persons, being civil engineers, as city surveyors, whose duties and powers shall be as now provided by law in regard to county surveyors; but all applicants shall produce satisfactory testimonials of good character and competency, and when appointed shall give bond in the sum now required by law from surveyors in St. Louis County, and the county court of St. Louis may appoint county surveyors under the same restrictions. The present county surveyors, commissioned by the county court under an act entitled "An act to amend chapter 27 of the general statutes of Missouri relating to county surveyors," approved March 25, 1872, may continue in authority and in discharge of their present duties in the City and County of St. Louis until the expiration of the commissions held by them respectively, and the said city surveyors shall have the power to execute in the County of St. Louis all orders of the circuit court of the eighth judicial circuit as they were authorized to do before this scheme went into operation.

Cross reference—In connection with this section, see also § 11, Art. XXV of the Charter.

Section 17 Notaries public.

All notaries public now commissioned by the governor for St. Louis County shall exercise the official powers and duties of such office within the City and County of St. Louis as constituted by this scheme, and the city register shall keep a complete record of all notaries acting within the City of St. Louis and of their bonds and the date of their commissions and of the expiration thereof.

Section 18 Powers of sheriffs of city and county; duties of city marshal.

The sheriff of the City of St. Louis shall, within the limits of said city, exercise the authority now vested by law in the sheriff of the County of St. Louis, and after this scheme shall go into operation, all writs and other process which are now by law provided to be executed by the sheriff of the County of St. Louis, within the city limits, shall be directed to and executed by the sheriff of the City of St. Louis. The city marshal, after this scheme goes into operation, in addition to the duties now required by law to be performed by him, shall, within the city limits, exercise the same power and perform the same duties as are now provided by law in regard to the county marshal. And the sheriff of St. Louis County shall execute all process directed or delivered to him by any court of record of the County of St. Louis as are now established by law.

Section 19 Judges of election for November, 1876; returns, etc.

The judges of the election for state and other offices to be held in November, 1876, and for officers of the city and county as provided in this scheme shall be appointed as now provided by law, and the same judges shall act in the election for city and county officers at such November election, 1876, and the returns shall be made to the clerk of the present county court, who shall officially certify to the result; and in the event of any neglected [neglect] or failure on the part of said county court or any officer of the city or county to order and arrange for the election herein provided, the St. Louis court of appeals or any judge thereof may cause the same to be done, and may in such event appoint judges and take all other steps necessary to insure [ensure] the holding of said election in the manner contemplated herein.

Section 20 Public officers to assist in carrying out scheme.

It shall be the duty of all existing officers of St. Louis City and County to assist in carrying out the provisions of this scheme so far as any official act is necessary for that purpose; and in all cases in which said officers are continued in office under this scheme their duties and compensation shall be the same as are now provided by law.

Section 21 City may hold real estate in county.

The City of St. Louis may purchase, take and hold real estate in the County of St. Louis for the use of the city.

Section 22 Salaries of judicial officers.

Until otherwise provided by law, the salaries of all judges of courts now paid out of the county treasury and of all judicial officers not affected by the operation of this scheme shall be paid proportionately by the City and County of St. Louis according to the aggregate of taxable values in each; and to carry out this section the municipal assembly shall annually provide for paying such expenses, and it shall be the duty of the county court of said county and a binding obligation thereon to pay into the city treasury annually an amount equal to the proportion of the expenses herein indicated; and the officers of said city may make any temporary arrangement necessary to carry out the provisions of this section until the municipal assembly can regulate the subject by ordinance.

Section 23 Tax bills on property intersected by city limits.

Immediately after this scheme goes into operation, the present state and county collector of revenue shall turn over to the president of the board of assessors all the tax bills then in his hands that apply to lots or parcels of land which shall have become intersected by the new city limits line, for which bills the said president shall return from a detailed receipt, to be held by him (the collector) as his sufficient voucher against the corresponding tax amounts for which he may stand charged; and the said president shall proceed at once to make, in lieu of the bills received, new bills, whereon the amounts of taxes shall be separated in the proportion of quality and value of land or land improvements, respectively lying within and without the newly established city limits, to the end that the taxes distributable to the county and those distributable to the city shall all be represented by separate bills. The new bills thus ordered when completed by the said president, shall be by him delivered to the comptroller to be examined and stamped, and they shall next with the least practicable delay, be

returned by the comptroller to the collector for collection. The old tax bills herein above named shall likewise be by the president surrendered to the comptroller, who shall cancel them.

Cross reference—See also § 8 of this Scheme.

City Counselor Ops.: 9691

Section 24 Authority of county court conferred on municipal assembly.

The municipal assembly shall have power within the City of St. Louis to do all acts and perform all functions not otherwise provided for in this charter and not inconsistent with its terms which have heretofore been done and performed by the county court of the County of St. Louis.

City Counselor Ops.: 9532, 10307

Section 25 Admission to poorhouse, insane asylum, etc.

Until the County of St. Louis as organized by this scheme shall otherwise provide, the county court thereof shall be authorized to send the paupers of said county to the poorhouse or county farm now in use and the insane paupers of said county to the insane asylum now in use, and for the maintenance of such paupers shall pay to the treasurer of the city the cost of maintaining paupers in those institutions, to be ascertained by the annual reports of the same.

Section 26 Prosecuting attorneys and clerks of eighth judicial district continued in office.

The circuit attorney and assistant circuit attorney for the eighth judicial circuit, the prosecuting attorney, the assistant prosecuting attorney and the clerk of the St. Louis court of criminal correction, and the clerk of the St. Louis criminal court, shall continue to hold their offices and discharge the duties thereof as now provided by law until the expiration of their respective terms of office and until their successors are duly elected and qualified.

Section 27 Grand jurors—How selected and summoned.

After this scheme goes into operation, and until otherwise provided by law, the grand jury of the eighth judicial circuit shall be selected by the judge of the St. Louis criminal court from the City and County of St. Louis and shall be summoned by the marshal of the City of St. Louis.

Section 28 Same—How paid.

All members of grand juries selected from the City of St. Louis shall be paid out of the city treasury, and those from the County of St. Louis shall be paid out of the county treasury. All payments shall be upon certificates of the clerk of the St. Louis Criminal Court.

Section 29 Costs in criminal cases.

In the criminal cases occurring in the City of St. Louis in which, by the law in force prior to this scheme going into operation, the County of St. Louis was liable to pay such costs, such costs shall, after that time, be paid out of the City treasury, and in like cases occurring in the County of St. Louis, shall be paid out of the treasury of the County of St. Louis.

Section 30 Petit jurors—How selected and summoned.

Petit jurors to serve in the circuit court of the eighth judicial circuit, in the St. Louis criminal court, and in the St. Louis court of criminal correction shall, until otherwise provided, be selected and summoned as now provided by law, except that jurors for the said circuit court shall be summoned by the sheriff of the City of St. Louis, and jurors to serve in the said other two courts shall be summoned by the marshal of the City of St. Louis. And the act to provide a jury system in St. Louis county approved March 3, 1857, and the acts mandatory thereof, shall remain in force until altered or repealed, and the present jury commissioner of St. Louis county shall remain in office until the expiration of his official term and perform all the duties now required of him by law.

Section 31 Same—How paid.

For all services of petit jurors rendered in the circuit court of the eighth judicial circuit they shall be paid out of the city treasury and for all such services rendered by citizens of St. Louis and in the St. Louis criminal court and the St. Louis court of criminal correction they shall be paid out of the city treasury and for all such services rendered in the last-mentioned courts by citizens of St. Louis County they shall be paid out of the county treasury.

Section 32 Collections payable into city treasury; payments into county treasury; appropriations by municipal assembly.

In all cases, where, according to the laws in force up to the time when this scheme shall go into operation,

any public officer or other person was required to pay any money coming into his hands from any source whatever into the county treasury of St. Louis County, and where it is not otherwise provided in this scheme or the charter framed under it, such officer or person shall, after the time aforesaid, pay all such money into the treasury of the City of St. Louis at or within such times as he was theretofore required to pay the same into the county treasury; and if no time shall be prescribed by law for any such payments, then he shall pay the same monthly on the first Monday of each month, into said city treasury, and shall take triplicate receipts therefor, stating the account on which such payment was made, one of which he shall file in the city auditor's office and one with the comptroller, who shall charge the treasurer with the amount so paid; and the said auditor and treasurer shall keep accounts showing the account on which such payments were made and the source from which the money was derived. All such money shall be applied and used for the purposes for which it was collected or for which it was made applicable by law and in all cases where such money is not set apart or appropriated by law for specific purposes the municipal assembly of the city may appropriate it to such municipal uses as it may deem proper; provided, however, that all fines, penalties and forfeitures collected or accruing in the County of St. Louis or on account of said county or the people thereof shall be paid in the manner and at times aforesaid into the county treasury of said county, and duplicate receipts shall be taken as aforesaid by the officer or person paying the same, one of which he shall file with the county clerk of said county, who shall charge the treasurer with the amount so paid, and such money shall be appropriated and used as it is or may be provided by law; and provided further that if any public officer or other person shall, at the time this scheme goes into operation, be in default in the payment of any such money into the said county treasury, he shall immediately pay the same into the said city treasury in the manner aforesaid, and the same shall be disposed of as herein provided.

Section 33 Power of former county collector vested in sheriff of county.

All powers heretofore vested in the collector of the County of St. Louis and all duties required to be performed by him in reference to taxes on property situated outside of the limits of the City of St. Louis as enlarged, and in reference to the sale of such property for taxes and the redemption thereof, shall, after the election and qualification of the sheriff of the County of St. Louis as provided by this scheme, be executed and performed by such sheriff; and all deeds for the sale of land for taxes made by him shall be acknowledged before the clerk of the county court of St. Louis County.

Section 34 Authority of municipal assembly as to revenue.

The municipal assembly shall have power to enact all ordinances that may be necessary to carry into execution the laws relating to state, county, city and other revenue within the City of St. Louis as enlarged; and such powers as are now vested by law in the county court of St. Louis County or the clerk of said court or the county collector and auditor may be exercised by such tribunals and officers as may be provided by ordinance.

Section 35 Regulations as to animals running at large.

It shall be unlawful for any domestic animal of the species of horse, cattle, mule, ass, swine, sheep or goat to be suffered to run at large by the owner thereof in the City or County of St. Louis; and if any such animal be found running at large in said city or county after this scheme and charter go into operation; it shall be lawful for any person to take up and restrain the same forthwith; and such person shall, within three days after so taking up and restraining such animal, give notice thereof to the owner, if known, and thereupon such owner shall pay a reasonable compensation for taking up, keeping and feeding such animal, and for damages actually caused by such animal. If the owner be not known, or fails to make such reasonable compensation after being notified, any animal so taken up shall be deemed an estray, and may be proceeded against by the taker up thereof in the manner provided by law in regards to strays; provided, however, that this section shall not be so construed as to prohibit any person from driving, herding and guarding such stock upon the uninclosed lands belonging to said county, the state or the United States.

Section 36 School districts interested by city limits.

In all cases where the limits of the City of St. Louis as herein extended include a part only of any school district, the following shall be the mode of adjustment as to property held by or for the use or benefit of such

district: First, where the part of such district included within such extended limits contains any school house or other real estate belonging to the district, the board of president and directors of the St. Louis public schools shall pay into the county treasury of St. Louis County for the use of that part of the district not so included, such proportion of the valuation of said school property as the taxable value of property in the part of such district not so included bears to the taxable value of all property in such district, as constituted before such extension. Second, where the part of such district, not included within such extended limits, contains any school house or other real estate belonging to the district, the inhabitants of the district not so included shall pay to the board of president and directors of the St. Louis public schools such proportion of the valuation of said school property as the taxable value of property in the part of such district included within the city limit bears to the taxable value of all property in such district, as constituted before such extension. The valuation of school property mentioned in this section shall be made by arbitrators, one of whom shall be selected by the board of president and directors of the St. Louis public schools and one by the directors of the school district affected, who if disagreeing, may select a third; or, if unable to agree on the selection of such third arbitrator, any school director or member of the board of president and directors of the St. Louis public schools may apply to the circuit court of the eighth judicial circuit to appoint one. A report of the valuation made by such arbitrators or a majority thereof shall be filed as soon as practicable in the clerk's office of the circuit court of the eighth judicial circuit. Any money to be paid to the board of president and directors of the St. Louis public schools shall be provided for by the assessment, levy and collection of a special tax on all taxable property within such districts not so included.

Section 37 School property transferred to St. Louis public schools.

All property, real, personal or mixed, of every kind and description, and the evidence of title thereto, now held by the County of St. Louis or by the county court of St. Louis County in trust or for the use of the inhabitants of township forty-five north of range seven east for school purposes, and all such property, and the evidences of title thereto, held by any public officer for the use of any school district in said township, or held by or for the benefit of any such district, shall, as soon as this scheme goes into effect, pass and be delivered to the board of president and directors of the St. Louis public schools; and the title to any and all such property shall by operation hereof vest in said board.

Section 38 Enumeration of children within school age; division of school property.

The board of president and directors of the St. Louis public schools shall forthwith after this scheme goes into effect cause an enumeration to be taken of all children within school ages within the limits of the City of St. Louis as herein established and the county court of St. Louis County shall cause forthwith a similar enumeration to be taken within the County of St. Louis outside the city limits as herein established, showing the enumeration in each school district and fractional school district separately, a correct report of which enumeration shall be filed by said board and said court, respectively, the clerk's office of the circuit court of the eighth judicial circuit within sixty days after this scheme and charter go into operation. So much of all property of every nature whatsoever and the evidence thereof belonging to the school fund of St. Louis County, or of congressional townships affected by the extension of the present city limits as, according to such enumeration, falls to the share of the district lying within the limits of the City of St. Louis shall at once pass and be delivered by the county court of St. Louis County, or public officers in charge thereof, to the board of president and directors of the St. Louis public schools, and the residue of all said property and the evidences thereof shall pass and be delivered by the present county court of St. Louis County, or public officers in charge thereof, to the proper authorities of the County of St. Louis as constituted by this scheme. From and after the date this scheme goes into operation all public officers within the City of St. Louis shall account for and pay over to the board of president and directors of the St. Louis public schools all fines and penalties and other moneys collected within said city and heretofore payable into and forming part of the county school fund of St. Louis County.

Section 39 Expenses of board of freeholders.

All claims for the printing, clerk hire and other expenses of this board of freeholders shall be made and certified to by the president of the board immediately after the adjournment of this board, and such claims, so certified, shall, as soon as this scheme and the char-

ter framed thereunder are adopted, be paid by the treasurer of the present County of St. Louis out of the general revenue of said county, and such payments shall be allowed to said treasurer in the settlement of his accounts as provided for in this scheme.

Title 1

GENERAL PROVISIONS

Chapters:

1.01	Code Adoption
1.04	Distribution of Code
1.08	Definitions and Rules of Construction
1.12	General Penalty
1.16	City Seal
1.18	Official Flower
1.20	Official Flag
1.24	Time
1.28	Ordinances
1.32	Holidays

Chapter 1.01

CODE ADOPTION

Sections:

1.01.010.	Code adopted.
1.01.020	Code kept by Register—Distribution.
1.01.030	Code as proof of ordinances—Effect of adoption.
1.01.040	Official codification designated.
1.01.050	Incorporation of subsequent ordinances.
1.01.060	Supplements to the Code.
1.01.070	Abbreviations for reference to the Code.

1.01.010. Code adopted.

The Code entitled "Revised Code of the City of Saint Louis, 2020, Annotated" published by Municipal Code Corporation, consisting of Titles 1 through 26 is adopted. The Code embraces ordinances of a general and permanent nature enacted on or before December 31, 2019. The Revised Code herein provided for shall also contain the Charter of the City of St. Louis, as amended, the "Scheme of Separation of the City of St. Louis and the County of St. Louis," annotations, cross-reference tables to previous codes, ordinance disposition tables, and index. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.020 Code kept by Register—Distribution.

The new Revised Code of the City of Saint Louis, 2020, Annotated, as herein adopted, shall be kept in the Office of the Register of the City of Saint Louis, as a part of the ordinance codified in this chapter and there kept for public record as provided for ordinances of the City; and copies of such code that shall have been printed on authority of the City of Saint Louis, shall be kept by the Register and distributed according to law, and attested as such according to RSMo 82.200, by authentication of the Register, and bear the Seal of the City of Saint Louis. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.030 Code as proof of ordinances—Effect of adoption.

The Revised Code of the City of Saint Louis, 2020, Annotated, shall be taken as prima facie proof of the City ordinances or part thereof of the ordinances so codified therein; provided further, the adoption of such new Code shall not work to effect any change, repeal or amendment of an ordinance or provision thereof, or affect any rights, benefits, duties, disabilities, liabilities, punishments, fines or forfeitures, or any other matters whatsoever past, present or future, except as specifically provided in this chapter. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.040 Official codification designated.

From the time of the effective date of the ordinance codified in this chapter, the official codification and revision of the City's ordinances shall be the Revised Code of the City of Saint Louis, 2020, Annotated, and the prior Revised Code of the City of Saint Louis, 1994, Annotated, shall no longer have any legal effect as a revision and codification of the ordinances of the City. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.050 Incorporation of subsequent ordinances.

All ordinances enacted after the adoption of the Revised Code of the City of Saint Louis, 2020, Annotated, shall be incorporated into such Code by periodic supplementation as hereinafter provided, and such supplements shall be taken as prima facie proof as provided by Section 1.10.030 hereof. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.060 Supplements to the Code.

The City Counselor of the City shall have charge and control of the supplementation of the Revised Code of the City of Saint Louis, 2020, Annotated, and such supplementation shall include such annotation, corrections of discovered errors or omissions as may be found to exist in the Code or supplements thereto; the

Mayor and the Comptroller of the City shall have authority, as appropriated funds obtain, to provide by contract for the editing, printing, publishing, and incidental expenses of such supplements in assistance to the City Counselor; and such supplements shall be filed and recorded in the Register's Office and distributed as provided by Chapter 1.04. (Ord. No. 71259, § 2, 12-18-2020.)

1.01.070 Abbreviations for reference to the Code.

References to the Revised Code of the City of Saint Louis, 2020, Annotated, may be abbreviated to more conveniently identify such Code by use of the terms "Rev. Code St. Louis, 2020, Anno.," or "R.C. St. Louis, 2020, Anno." or "Code" where in context it clearly appears that the Revised Code of the City of Saint Louis, 2020, Annotated, is referred to; and to indicate a time of supplementation the suffix "Supplement, 20" indicating the year, or an abbreviation "Sup. 20" may be used. (Ord. No. 71259, § 2, 12-18-2020.)

Chapter 1.04

DISTRIBUTION OF CODE

Prior ordinance history: Ord. 58275

Sections:

1.04.010 Code—Register to be custodian.

1.04.020 Code—Distribution.

1.04.030 Code—Sale.

1.04.040 Ordinances—Printing, binding, distribution and sale.

1.04.010 Code—Register to be custodian.

Upon receipt by the City, all copies of the Code shall be delivered to the City Register and be kept in the Register's Office until distributed. (1994 C., § 1.04.010; Ord. No. 63155, § 2, 1994.)

1.04.020 Code—Distribution.

A. The City Register shall upon recommendation and approval of the City Counselor distribute copies of the Code to the Mayor, the Comptroller, the President of the Board of Aldermen, the Aldermen, the City Counselor and various departments of the City as determined by the City Counselor and other agencies as determined by the City Counselor.

B. Supplements to such Code shall be distributed in the same manner as described in Subsection A of this section. (1994 C., § 1.04.020; Ord. No. 63155, §§ 3, 4, 1994.)

1.04.030 Code—Sale.

The Code and all supplements shall be made available for purchase to agencies of the state, county and federal government and the general public by the publisher. (1994 C., § 1.04.030; Ord. No. 63155, § 5, 1994.)

1.04.040 Ordinances—Printing, binding, distribution and sale.

A. It shall be the duty of the Register, as soon as practicable after the adjournment of each annual session of the Board of Aldermen, to have the original ordinances enacted at the regular and special sessions during the year bound in a substantial manner and properly labeled, and to make a written index of each ordinance, its number, and the date of its approval. The Register shall, from time to time, by his or her requisition, have copies of all ordinances printed through the supply division and shall keep them in his or her office for distribution. At the expiration of each annual session of the Board of Aldermen, the Register shall have bound not to exceed four hundred copies of all the ordinances enacted at the regular and special sessions thereof, for the use of the members of the municipal government, using for the purpose copies of the ordinances he or she shall have provided in his or her requisition for the printing of ordinances for distribution.

B. The Register shall distribute bound copies of the ordinances enacted by an annual session of the Board of Aldermen, in the same manner as described in Section 1.04.020.A.

C. The charges to be made to purchasers of copies of ordinances and bound copies of ordinances enacted at annual sessions of the Board of Aldermen, shall be established and a schedule of charges fixed by the Comptroller and the Mayor. (1994 C., § 1.04.040; Ord. No. 63155, §§ 6—8, 1994.)

Editor's Note:

Ordinance 58275, repealing 1960 Code §§ 5.010 through 5.050 and setting out code distribution provisions, became effective on the date the ordinance adopting the Revised Code of the City of St Louis, 1980, was approved.

Chapter 1.08

DEFINITIONS AND RULES OF CONSTRUCTION

Sections:

1.08.010 General.

1.08.020 Board of Aldermen.

1.08.030 Catchlines.
1.08.040 Charter.
1.08.050 City.
1.08.060 Code.
1.08.070 Computation of time.
1.08.080 County.
1.08.090 Gender.
1.08.100 Joint authority.
1.08.110 Month.
1.08.120 Number.
1.08.130 Oath.
1.08.140 Or and and.
1.08.150 Owner.
1.08.160 Person.
1.08.170 Preceding and following.
1.08.180 Property.
1.08.190 Public way.
1.08.200 Real property.
1.08.210 Sidewalk.
1.08.220 Signature.
1.08.230 State.
1.08.240 Street.
1.08.250 Tangible personal property.
1.08.260 Tenant.
1.08.270 Tenses.
1.08.280 Writing.
1.08.290 Year.

1.08.010 General.

In the construction of this Code and of all ordinances, the definitions and rules of construction in this chapter shall be observed, unless it shall be otherwise expressly provided in any section or ordinance or unless inconsistent with the manifest intent of the Board of Aldermen or unless the context clearly requires otherwise.

All general provisions, terms, phrases and expressions contained in this Code shall be liberally construed in order that the true intent and meaning of the Board of Aldermen may be fully carried out. (1948 C., Ch. 1, § 2(part); 1960 C., §§ 3.120, 4.010; 1994 C., § 1.08.010.)

City Counselor Ops.: 9752

1.08.020 Board of Aldermen.

"The Board" means the Board of Aldermen. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.020; 1994 C., § 1.08.020.)

1.08.030 Catchlines.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be taken to be titles of such section, nor as any part of the section, nor, unless expressly so provided, shall they be a part of the section when any of the sections, including the catchlines, are amended or reenacted. (1948 C., Ch. 1, § 3; 1960 C., § 3.100; 1994 C., § 1.08.030.)

1.08.040 Charter.

"The Charter" means and refers to the Charter of the City. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.030; 1994 C., § 1.08.040.)

1.08.050 City.

"The City" or "this City" means the City of St. Louis, Missouri. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.040; 1994 C., § 1.08.050.)

1.08.060 Code.

"The Code" or "this Code," unless it shall be otherwise expressly provided, means the Revised Code of the City. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.050; 1994 C., § 1.08.060.)

1.08.070 Computation of time.

The time within which an act is to be done shall be computed by excluding the first and including the last day; and if the last day be Sunday or a legal holiday, that shall be excluded. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.060; 1994 C., § 1.08.070.)

1.08.080 County.

"The county" means the County of St. Louis, Missouri. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.060; 1994 C., § 1.08.080.)

1.08.090 Gender.

When any subject matter, party or "person" is described or referred to by words importing the masculine, females as well as males, and associations and

bodies corporate as well as individuals, shall be included. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.020; 1994 C., § 1.08.090.)

1.08.100 Joint authority.

Words importing joint authority to three or more persons shall be authority to a majority of such persons. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.050; 1994 C., § 1.08.100.)

1.08.110 Month.

"Month" means a calendar month. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.110.)

1.08.120 Number.

When any subject matter, party or "person" is described or referred to by words importing the singular number, the plural and separate matters and persons and bodies corporate shall be included. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.030; 1994 C., § 1.08.120.)

1.08.130 Oath.

"Oath" includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed." (1948 C., Ch. 1, § 2(part); 1960 C., § 3.080; 1994 C., § 1.08.130.)

1.08.140 Or and and.

"Or" may be read "and," and "and" may be read "or" if the sense requires it. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.090; 1994 C., § 1.08.140.)

1.08.150 Owner.

"Owner," applied to a building or land, includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.080; 1994 C., § 1.08.150.)

1.08.160 Person.

"Person" includes a corporation, firm, partnership, association, organization and any other group acting as a unit as well as individuals. It also includes an executor, administrator, trustee, receiver or other representative appointed according to law. Whenever "person" is used in any section of this Code prescribing a penalty or fine, as to partnerships or associations, the word includes the partners or members thereof, and as to corporations, includes the officers, agents or members thereof who are responsible for any violation of the section. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.090; 1994 C., § 1.08.160.)

1.08.170 Preceding and following.

"Preceding" and "following" mean next before and next after, respectively. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.170.)

1.08.180 Property.

"Property" includes real and tangible and intangible personal property. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.100; 1994 C., § 1.08.180.)

1.08.190 Public way.

"Public way" includes any street, alley, boulevard, parkway, highway, sidewalk, or other public thoroughfare. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.110; 1994 C., § 1.08.190.)

1.08.200 Real property.

"Real property" or "premises" or "real estate" or "lands" shall be deemed to be co-extensive with lands, tenements and hereditaments. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.200.)

1.08.210 Sidewalk.

"Sidewalk" means the portion of the street between the curb line and the adjacent property line, intended for the use of pedestrians. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.120; 1994 C., § 1.08.210.)

1.08.220 Signature.

Where the written signature of any person is required, the proper handwriting of such person or his mark shall be intended. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.220.)

1.08.230 State.

"The state" or "this state" means the State of Missouri. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.130; 1994 C., § 1.08.230.)

City Counselor Ops.: 9769

1.08.240 Street.

"Street" means and includes any public way, highway, street, avenue, boulevard, parkway, alley, or other public thoroughfare, and each of such words includes every other of them. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.140; 1994 C., § 1.08.240.)

1.08.250 Tangible personal property.

Tangible personal property includes goods, chattels, and all personal property except intangible per-

sonal property. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.250.)

1.08.260 Tenant.

"Tenant" or "occupant," applied to a building or land, includes any person who occupies the whole or a part of such building or land, whether alone or with others. (1948 C., Ch. 1, § 2(part); 1960 C., § 4.150; 1994 C., § 1.08.260.)

1.08.270 Tenses.

Words used in the past or present tense, include the future as well as the past and present. (1948 C., Ch. 1, § 2(part); 1960 C., § 3.040; 1994 C., § 1.08.270.)

1.08.280 Writing.

"Writing" and "written" include printing, lithographing or other mode of representing words and letters. (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.280.)

1.08.290 Year.

"Year" means a calendar year, unless otherwise expressed, and the word "year" shall be equivalent to the "year of our Lord." (1948 C., Ch. 1, § 2(part); 1994 C., § 1.08.290.)

Chapter 1.12

GENERAL PENALTY

Charter:

Art. I § 1(34) Fines, forfeitures and penalties

Art. IV § 24 Fines and imprisonment

Cases:

A defendant who was convicted in municipal court for violation of city ordinances could not be tried by the state for grand larceny based on the same acts as were involved in violation of the ordinances as it would constitute double jeopardy. *Waller v. Florida.* 397 U.S. 387, 90 S. Ct. 1184 (1970). City of St Louis has the power to imprison a person for an ordinance violation. *St. Louis v. Von Hoffman,* 280 S.W. 421 (1926).

St. Louis must provide indigent defendants an opportunity to pay fines in equal installments. *Hendrix v. Lark,* 482 S.W. 2d 427 (1972). Defendant could not be imprisoned for inability to pay fine in installments after she made good faith effort to do so. *Hendrix v. Lark,* 482 S.W. 2d 427 (1972).

For cases stating that prosecutions by municipalities for the violation of an ordinance are civil actions to recover a debt or penalty due the City for the infraction of the ordinance, see *Groves v. Quick,* 319 S.W. 2d 543 and *City of Rayton v. Roach,* 360 S.W. 2d 741.

City Counselor Ops.: 8525, 9803

McQuillin:

27.06 Civil or criminal nature of proceedings

17.01 et seq. Penalties of municipal ordinances

Sections:

1.12.010 Penalty for violation.

1.12.020 General offense and infraction.

1.12.030 Classification of offenses.

1.12.040 Infraction.

1.12.045 Minor traffic violations and graduated penalty violations.

1.12.050 General offense—Action taken by court.

1.12.060 Infraction—Action taken by court.

1.12.070 Violation by organization—Action taken by court.

1.12.080 Commencement of prosecution—Time limitation.

1.12.090 Commencement of prosecution—Expiration of time period.

1.12.100 Determination of commencement of offense and prosecution.

1.12.110 Inapplicability of period of limitation.

1.12.120 Retroactivity of provisions.

1.12.130 Exclusivity of provisions.

1.12.010 Penalty for violation.

Every person convicted of a violation of any section of this Code shall be punished by a fine of not less than one dollar nor more than five hundred dollars or by imprisonment for not more than ninety days or by both such fine and imprisonment, except as may be otherwise specifically provided in this Code. Each day that any violation shall continue shall constitute a separate offense. (1948 C., Ch. 1, § 16; 1960 C., § 1.100; 1994 C., § 1.12.010.)

1.12.020 General offense and infraction.

A. *General Offense.* A crime is a "general offense" if it is so designated or if persons convicted thereof may be sentenced to imprisonment for a term of which the maximum is 90 days or less and/or a fine of $500.00 or less.

B. *Infraction.*

1. An offense defined by this chapter or by any other code or ordinance of this City constitutes an "infraction" if it is so designated or if no other sentence than a fine, or fine and forfeiture or other civil penalty is authorized upon conviction.

2. An infraction does not constitute a crime and conviction of an infraction shall not give rise to any disability or legal disadvantage based on conviction of a crime. (1994 C., § 1.12.020; Ord. No. 57839, § 1, 1979.)

1.12.030 Classification of offenses.

General offenses are classified for the purpose of sentencing into the following two categories:

A. *Class I General Offense.* It is a Class I general offense if the authorized imprisonment is 90 days or less, and/or a fine not to exceed $500.00.

B. *Class II General Offense.* It is a Class II general offense if the authorized imprisonment is 30 days or less, and/or a fine not to exceed $500.00. (1994 C., § 1.12.030; Ord. No. 57839, § 2(1), 1979.)

1.12.040 Infraction.

It is an infraction if there is no authorized imprisonment. (1994 C., § 1.12.040; Ord. No. 57839, § 2(2), 1979.)

1.12.045 Minor traffic violations and graduated penalty violations.

A. Definitions.

1. "Minor traffic violation" shall have the meaning set forth in RSMo 479.350(3).

2. "Graduated penalty violation" shall have the same meaning as "municipal ordinance violation" as set forth in RSMo 479.350(4).

B. The following conditions apply to minor traffic violations and graduated penalty violations:

1. For a minor traffic violation, the court shall not asses a fine, if combined with the amount of court costs, totaling in excess of two hundred twenty-five dollars.

2. Notwithstanding any other provision of this Code to the contrary, for a graduated penalty violation, the court shall not assess a fine, if combined with the amount of court costs, totaling in excess of:

a. Two hundred dollars, if the defendant has committed no graduated penalty violation within twelve months prior to the violation for which the defendant is to be sentenced;

b. Two hundred seventy-five dollars, if the defendant has committed one graduated penalty violation within twelve months prior to the violation for which the defendant is to be sentenced;

c. Three hundred fifty dollars, if the defendant has committed two graduated penalty violations within twelve months prior to the violation for which the defendant is to be sentenced; or

d. Four hundred fifty dollars, if the defendant has committed three or more graduated penalty violations within twelve months prior to the violation for which the defendant is to be sentenced.

3. The court shall not sentence a person to confinement, except that the court may sentence a person to confinement for any violation involving alcohol or controlled substances, violations endangering the health or welfare of others, or eluding or giving false information to a law enforcement officer.

4. A person shall not be placed in confinement for failure to pay a fine unless such non-payment violates terms of probation or unless the due process procedures mandated by Missouri Supreme Court Rule 37.65 or its successor rule are strictly followed by the court.

5. Court costs that apply shall be assessed against the defendant unless the court finds that the defendant is indigent based on standards set forth in determining such by the presiding judge of the circuit. Such standards shall reflect model rules and requirements to be developed by the Supreme Court.

6. No court costs shall be assessed if the defendant is found to be indigent under Subsection B.5 of this section or if the case is dismissed.

7. The provisions of this section applying to penalties for general penalty violations shall apply to any misdemeanor charge of Failure to Abate a Nuisance After Ordered by the Health Commissioner prosecuted under Section 11.58.050 of this Code.

8. The provisions of this section apply to the charge of Failure to Abate a Nuisance After Ordered by the Health Commissioner as codified in Section 11.58.050 of this Code. (1994 C., § 1.12.450; Ord. No. 70511, § 1, 2-21-2017.)

1.12.050 General offense—Action taken by court.

Whenever any person has been found guilty of a general offense the court shall make one or more of the following dispositions of the offender in any appropriate combination. The court may:

A. Sentence the person to a term of imprisonment as authorized by ordinance or code;

B. Sentence the person to pay a fine as authorized by ordinance or code;

C. Suspend the imposition of sentence, with or without placing the person on probation;

D. Pronounce sentence and suspend its execution, placing the person on probation;

E. Impose a period of detention as a condition of probation. (1994 C., § 1.12.050; Ord. No. 57839, § 3(part), 1979.)

1.12.060 Infraction—Action taken by court.

Whenever any person has been found guilty of an infraction, the court shall make one or more of the following dispositions of the offender in any appropriate combination. The court may:

A. Sentence the person to pay a fine as authorized by ordinance or code;

B. Suspend the imposition of sentence, with or without placing the person on probation;

C. Pronounce sentence and suspend its execution, placing the person on probation. (1994 C., § 1.12.060; Ord. No. 57839, § 3(part), 1979.)

1.12.070 Violation by organization—Action taken by court.

Whenever any organization has been found guilty of a general offense or infraction, the court shall make one or more of the following dispositions of the organization in any appropriate combination. The court may:

A. Sentence the organization to pay a fine as authorized by ordinance or code;

B. Suspend the imposition of sentence, with or without placing the organization on probation;

C. Pronounce sentence and suspend its execution, placing the organization on probation;

D. Impose any special sentence or sanction authorized by law. (1994 C., § 1.12.070; Ord. No. 57839, § 3(part), 1979.)

1.12.080 Commencement of prosecution—Time limitation.

Except otherwise provided in Sections 1.12.090 through 1.12.110, prosecutions for other offenses must be commenced within the following periods of limitation:

A. For any general offense, one year;

B. For any infraction, six months. (1994 C., § 1.12.080; Ord. No. 57839, § 4(part), 1979.)

RSMo:

RSMo 556.036 (2016) Time limitations

1.12.090 Commencement of prosecution—Expiration of time period.

If the period prescribed in Section 1.12.080 has expired, a prosecution may nevertheless be commenced for:

A. Any offense a material element of which is either fraud or a breach of fiduciary obligation within one year after discovery of the offense by an aggrieved party or by a person who has a legal duty to represent an aggrieved party and who is himself not a party to the offense, but in no case shall this provision extend the period of limitation by more than three years; and

B. Any offense based upon misconduct in office by a public officer or employee at any time when the defendant is in public office or employment or within two years thereafter, but in no case shall this provision extend the period of limitation by more than three years; and

C. Any offense involving failure to file a municipal earnings tax return. (1994 C., § 1.12.090; Ord. No. 57839, § 4(part), 1979.)

1.12.100 Determination of commencement of offense and prosecution.

A. An offense is committed either when every element occurs, or, if a legislative purpose to prohibit a continuing course of conduct plainly appears at the time when the course of conduct or the defendant's complicity therein is terminated. Time starts to run on the day after the offense is committed.

B. A prosecution is commenced when an information is filed. (1994 C., § 1.12.100; Ord. No. 57839, § 4(part), 1979.)

1.12.110 Inapplicability of period of limitation.

The period of limitation does not run:

A. During any time when the accused is absent from the state, but in no case shall this provision extend the period of limitation otherwise applicable by more than three years; or

B. During any time when the accused is concealing himself from justice either within or without this state; or

C. During any time when a prosecution against the accused for the offense is pending in this state. (1994 C., § 1.12.110; Ord. No. 57839, § 4(part), 1979.)

1.12.120 Retroactivity of provisions.

The provisions of this Code do not apply to or govern the construction of and punishment for any

offense committed prior to January 1, 1979, or the construction and application of any defense to a prosecution for such an offense. Such an offense must be construed and punished according to the provisions of law existing at the time of the commission thereof in the same manner as if the ordinance codified in Sections 1.12.020 through 1.12.130 had not been enacted. (1994 C., § 1.12.120; Ord. No. 57839, § 5, 1979.)

1.12.130 Exclusivity of provisions.

All offenses defined by ordinance or chapter of the Code of the City, and not repealed, shall remain in effect, but unless otherwise expressly provided or unless the context otherwise requires, the provisions of the ordinance codified in Sections 1.12.020 through 1.12.130 shall govern the construction of any such offenses committed after January 1, 1979, as well as the construction and application of any defense to a prosecution for such offenses. (1994 C., § 1.12.130; Ord. No. 57839, § 6, 1979.)

Chapter 1.16

CITY SEAL

Charter:

Art. I § 1 Body corporate; seal; enumeration of powers

McQuillin:

6.01 Power to adopt and use seals

Sections:

1.16.010 Description—Validity.

1.16.010 Description—Validity.

The Register shall have custody of the City seal. It shall be of circular shape, one and one-half inches in diameter, with a device engraved thereon of a steamboat carrying a United States flag, surmounted with a scroll inscribed with the words: "The common seal of the City of St. Louis," in Roman capitals engraved upon the face thereof. No impression of the City seal to any contract or other writing shall have any validity or binding obligation upon the City unless the impression be accompanied by the attestation and signature of the Register or First Deputy Register, and then only in cases authorized by law and ordinance. (1948 C., Ch. 1, § 4; 1960 C., § 6.010; 1994 C § 1.16.010.)

Chapter 1.18

OFFICIAL FLOWER

Sections:

1.18.010 Designated.

1.18.010 Designated.

The Iris is hereby designated the official flower of the City of St. Louis. (1994 C., § 1.18.010; Ord. No. 69607, § 1, 11-6-2013.)

Editor's Note:

Ord. No. 69607 became effective on February 15, 2014, the date of the 250th Anniversary of the founding of the City of St. Louis by Pierre de Laclède.

Chapter 1.20

OFFICIAL FLAG

Sections:

1.20.010 Description.

1.20.010 Description.

The design submitted by Professor Emeritus Theodore Sizer, Pursuivant of Arms at Yale University, and now on file in the office of the City Register is approved, adopted and designated as the official flag of the City. The flag with a solid red background has two broad heraldic wavy bars, colored blue and white, extending from the left top and bottom corners toward left center where they join and continue as one to the center right edge. This symbolizes the confluence of the Missouri and Mississippi rivers. Over the point of confluence a round golden disk upon which is the fleur-de-lis of France (blue) calling attention to the French background of the early City and more particularly to St. Louis of France for whom the City is named. The golden disk represents the City and/or the Louisiana Purchase. (Heraldically, the disk is a "bezant" or Byzantine coin signifying, money or simply purchase.)

The flag's colors recall those of Spain (red and yellow or gold), Bourbon France (white and gold), Napoleonic and Republican France (blue, white and red), and the United States of America (red, white, and blue). (1948 C., Ch. 1, § 5; 1960 C., § 6.020; 1994 C., § 1.20.010; Ord. No. 52322, § 2, 1964.)

Chapter 1.24

TIME

Sections:

1.24.010 Designated.

1.24.020 Reference in ordinances.

1.24.030 Performance of acts and accrual of rights.

1.24.040 Clocks in public buildings.

1.24.010 Designated.

United States standard time for the zone in which the City is located shall be the official time of the City, but if that time is not later than the mean astronomical time of the ninetieth degree of longitude west from Greenwich the official time for the City shall be advanced one hour from two a.m. on the last Sunday in April until two a.m. on the last Sunday in October in each year. (1948 C., Ch. 1, § 6; 1960 C., § 7.010; 1994 C., § 1.24.010; Ord. No. 47954, § 1(part), 1956.)

1.24.020 Reference in ordinances.

When reference is made to any time without qualification in any ordinance, resolution or order passed by the Board of Aldermen or in any official notice, advertisement or document of the City or in any contract to which the City is a party, it shall be understood to refer to the official time of the City as described in Section 1.24.010. When the words "daylight saving time" are used, the reference shall be to the advanced time prescribed in Section 1.24.010 as the official time from the last Sunday in April until the last Sunday in October. (1948 C., Ch. 1, § 7; 1960 C., § 7.020; 1994 C., § 1.24.020; Ord. No. 47954, § 1(part), 1956.)

1.24.030 Performance of acts and accrual of rights.

In all ordinances, resolutions or orders of the Board of Aldermen and in all official notices, advertisements or documents of the City and in all contracts to which the City is a party relating to the time of performance of any act by any officer or department of the City or relating to the time within which any rights shall accrue or determine or within which any act shall or shall not be performed by any person, it shall be understood and intended that the time shall be the official time of the City as prescribed in this chapter. (1948 C., Ch. 1, § 8; 1994 C., § 1.24.030.)

City Counselor Ops.: 8029

1.24.040 Clocks in public buildings.

All clocks or other timepieces in or upon public buildings or other premises maintained at the expense of the City shall be set and run according to the official time. It is the duty of the officer or other person having control and charge of the building or buildings and premises to see that the clocks or other timepieces are set and run in accordance with official time. (1948 C., Ch. 1, § 9; 1960 C. 7.030; 1994 C., § 1.24.040.)

Chapter 1.28

ORDINANCES

Charter:

Art. IV §§ 10—22 Ordinances

City Counselor Ops.: 8178

Sections:

1.28.010 Numbered—Preserving.

1.28.020 Repeal does not revive.

1.28.030 City Counselor to approve form.

1.28.040 Ordinance in revision a continuance.

1.28.050 Effect of repeal—On rights or actions.

1.28.060 Effect of repeal—On tenure of office.

1.28.070 Effect of repeal—On offense or penalty.

1.28.080 Hereafter and heretofore defined.

1.28.090 Proposed board bill with associated costs requiring fiscal note.

1.28.010 Numbered—Preserving.

Every ordinance when passed and approved by the Mayor, or when it shall have become a law, shall be sent to the Register and by him shall be numbered, filed and preserved in his office. (1948 C., Ch. 2, § 39; 1994 C., § 1.28.010.)

1.28.020 Repeal does not revive.

When an ordinance repealing a former ordinance, clause, or provision shall itself be repealed, such repeal shall not, unless it be expressly so provided, revive the former ordinance, clause or provision, or any ordinance, clause or provision theretofore repealed or superseded nor any office theretofore abolished. (1948 C., Ch. 2, § 40; 1994 C., § 1.28.020.)

1.28.030 City Counselor to approve form.

All bills embodying general ordinance provisions, before final passage by the Board of Aldermen, shall be submitted to the City Counselor or Associate City Counselor, whose duty it shall be to examine the same without unnecessary delay and recommend alterations or modifications in the form thereof, if any are necessary, as will make all such bills altered or modified conform to the proper Charter requirements as to the form of ordinance and to the general plan of the current City Code. Nothing herein shall require bills not

embracing general ordinance provisions to be so submitted. (1948 C., Ch. 2, § 41; 1994 C., § 1.28.030.)

1.28.040 Ordinance in revision a continuance.

The provisions of the ordinance in revision of the general ordinances of the City so far as they are the same as those of existing ordinances shall be a continuance of such ordinances, and not as new enactments. (1948 C., Ch. 2, § 42; 1994 C., § 1.28.040.)

1.28.050 Effect of repeal—On rights or actions.

The repeal of any ordinance, part of ordinance or resolution shall not affect any act done or right accrued or established in any proceeding, action, suit or prosecution or other thing had or commenced previous to the time when such repeal shall take effect; but every such act, right or proceeding shall remain and continue as valid and effectual as if the provisions of any such ordinance or resolution had remained in force. (1948 C., Ch. 2, § 43; 1994 C., § 1.28.050.)

1.28.060 Effect of repeal—On tenure of office.

The tenure of any office, or accountability of any officer of the City, shall not be affected by the repeal of any ordinance, clause or provision, unless it be otherwise expressly provided in the repealing ordinance. (1948 C., Ch. 2, § 44; 1994 C., § 1.28.060.)

1.28.070 Effect of repeal—On offense or penalty.

No offense committed and no fine, forfeiture or penalty incurred, previous to the time when the provisions of any ordinance, parts of an ordinance or resolution shall be repealed, shall be affected, released or in any way discharged, by such repeal. The trial, conviction and punishment of all such offenses, and the recovery of such fines, forfeitures and penalties shall be had in all respects as if such provision had remained in force. (1948 C., Ch. 2, § 45; 1994 C., § 1.28.070.)

1.28.080 Hereafter and heretofore defined.

Whenever the term "heretofore" occurs in any ordinance, it means any time previous to the day when such ordinance shall take effect. Whenever the term "hereafter" occurs, it means any time after such ordinance shall take effect. (1948 C., Ch. 2, § 46; 1994 C., § 1.28.080.)

1.28.090 Proposed board bill with associated costs requiring fiscal note.

A. A proposed board bill shall prior to introduction be accompanied by a fiscal note if such board bill authorizes any of the following:

1. An expansion of services which entails additional costs beyond that approved in the current adopted City budget;

2. An undertaking of a new service for which no funding is provided in the current adopted City budget;

3. A commitment of City funding in the future under certain specified conditions;

4. An issuance of bonds, notes and lease-purchase agreements which may require additional funding beyond that approved in the current adopted City budget;

5. An execution or initiation of an activity as a result of federal or state mandates or requirements;

6. A capital improvement project that increases operating costs over the current adopted City budget; or

7. A capital improvement project that requires funding not approved in the current adopted budget or that will require funding in future years.

B. The purpose of the fiscal note shall be to allow for a brief review of the fiscal impact of the proposed board bill under consideration. A fiscal note shall be a brief informational document, separate from any fact sheet or other document, conveying the estimated fiscal impact of the proposed board bill on the City.

C. Estimated fiscal impact shall mean the following:

1. The estimated expenditures by the City resulting from the proposed board bill for the current and next subsequent fiscal year;

2. Whether the proposed board bill is estimated to have a direct fiscal impact on any City department or office;

3. Whether the proposed board bill creates a program or administrative subdivision that significantly duplicates an already existing program or administrative subdivision;

4. Whether the proposed board bill is estimated to require the construction of any new physical facilities;

5. The amount of non-City funds that may be received in the current and next subsequent fiscal year to fund the proposed board bill;

6. A description of the annual operating, equipment and maintenance costs resulting from the proposed board bill.

D. The Clerk of the Board of Aldermen, in coordination with the City Budget Division shall be responsible for ensuring that a fiscal note has been prepared and such fiscal notes shall be in a form of their design. City departments and offices shall cooperate in providing any information necessary for the preparation of a fiscal note.

E. The Clerk of the Board of Aldermen shall forward each fiscal note to the bill's sponsor, the committee to which the bill was referred, and the office of the President of the Board. If any substantive changes are made to the proposed board bill which would alter the estimated fiscal impact in the fiscal note, then the fiscal note shall be revised. The revised fiscal note must be prepared prior to the bill's consideration for adoption by the full Board of Aldermen.

F. The Clerk of the Board of Aldermen shall not assign a board bill number to a proposed board bill requiring a fiscal note pursuant to this section unless a fiscal note, or a letter certifying that the necessary City departments or offices have failed to cooperate in the preparation of the fiscal note, is attached to such proposed board bill. (1994 C., § 1.28.090; Ord. No. 70404, § 1, 12-19-2016.)

Chapter 1.32

HOLIDAYS

McQuillin:

24.196 Holiday observance

Sections:

1.32.010 Martin Luther King Day.

1.32.020 Veterans Day.

1.32.010 Martin Luther King Day.

January 15, 1971 and January 15 of every year thereafter, in conformity with the authority granted by the City Charter is declared the Rev. Dr. Martin Luther King Day, and is established as a public holiday. All courts, public offices, legal and official proceedings, in so far as they are subject to, or under the control of the City, shall be governed and regulated thereby. (1994 C., § 1.32.010; Ord. No. 55777, § 1, 1971.)

1.32.020 Veterans Day.

In conformity with the authority granted by the City Charter, November Eleventh is declared Veterans Day Anniversary, and is established as a public holiday. All courts, public offices, legal and official proceedings, in so far as they are subject to, or under the control of the City, shall be governed and regulated thereby. (1994 C., § 1.32.020; Ord. No. 50612, § 2, 1961.)

Title 2

ELECTIONS

Constitution:

Art. 8 § 2 Suffrage and elections

Charter:

Art. II Elections

RSMo:

RSMo Chs. 115—130 (2016) Suffrage and elections

McQuillin:

12.02 et seq. Municipal elections

Chapters:

2.04 **Flags at Polling Places**

2.08 **Election Rules and Procedures**

2.12 **Wards**

Chapter 2.04

FLAGS AT POLLING PLACES

Sections:

2.04.010 **Flag to be provided.**

2.04.020 **Display.**

2.04.010 Flag to be provided.

The board or officer in charge of elections shall provide a United States flag for each voting precinct and shall send the flag to each voting precinct with the other election paraphernalia for each registration, revision, election or primary election. (1948 C., Ch. 20, § 1; 1960 C., § 75.010; 1994 C., § 2.04.010.)

2.04.020 Display.

It shall be the duty of each of the judges and each of the clerks of the election at each polling place to see to it that the flag is prominently displayed outside the polling place while the polling place is open and to return it with the other election paraphernalia. (1948 C., Ch. 20, § 2; 1960 C., § 75.020; 1994 C., § 2.04.020.)

Chapter 2.08

ELECTION RULES AND PROCEDURES

RSMo:

RSMo Chs. 115—130 (2016) Suffrage and Elections

City Counselor Ops.: 8839

Cases:

Ordinance requiring separate ballots and ballot boxes for nomination and election of city officers at general state primaries and elections is invalid. *State v. Barrett,* 352 Mo. 1130, 181 S.W. 2d 493 (1944).

Statute providing that conduct of elections in cities of 600,000 or more shall be governed by such statute and the general election laws withdraw all authority from St. Louis respecting such subject, to with permanent registration and conduct of elections. *State v. Barrett,* 352 Mo. 1130, 181 S.W. 2d 493 (1944).

Phrase "at the time," in statute prohibiting election or appointment to office of person who shall at the time be in arrears for any unpaid city taxes, refers to time polls close on election day, not time of filing of declaration of candidacy. VAMS 79.250 *In re Williams,* 943 S.W.2d 244 (Mo. App. E.D. 1977).

Sections:

2.08.010 **Nominations.**

2.08.020 **Primary—Date.**

2.08.030 **Primary—Notice.**

2.08.040 **Primary—Supplemental notice.**

2.08.050 **Declaration of intent.**

2.08.060 **Candidate payment to political party.**

2.08.070 **Independent candidate payment.**

2.08.080 **One declaration per candidate—Filing.**

2.08.090 **Election notice—Contents—Publishing.**

2.08.100 **Election notice—Publishing requirements.**

2.08.110 **Ballots—Candidates names.**

2.08.120 **Ballots—Sample—Distribution.**

2.08.130 **Primary expenses.**

2.08.140 **Tickets.**

2.08.150 **Exception to printed ballot.**

2.08.160 **Vacancies of nominee.**

2.08.170 **Voter qualifications.**

2.08.180 **Challengers and witnesses.**

2.08.190 **Rejection of ballot—Party change.**

2.08.200 **Canvass of votes.**

2.08.210 **Returns—Required.**

2.08.220 **Returns—Procedure.**

2.08.230 **Party candidate—Determination.**

2.08.240 **Party candidate—Ties.**

2.08.250 **Board of Election Commissioners to prepare blanks.**

2.08.260 **Designation of judges and clerks.**

2.08.270 Declaration of results—Certificate of nomination.

2.08.280 Statutes regulating elections to apply to primaries.

2.08.290 Vacancies occurring after last day for filing.

2.08.300 Central committees to file certificate of nomination.

2.08.310 Nominees to be placed on ballot.

2.08.320 Provisions for nomination—Candidates of parties having no central committee.

2.08.330 Provisions for nomination—Nonpartisan candidate.

2.08.340 Substitute candidates.

2.08.350 Primary elections of City officers to be separate from general state primary.

2.08.360 General state elections to be separate from election of candidates for City offices.

2.08.370 Change of date of filing declaration of candidacy.

2.08.380 RSMo 122.650 and 122.660 (1969).

2.08.390 Election statutes incorporated.

2.08.400 Filing and withdrawal.

2.08.410 City Register duties.

2.08.420 Publication of list of offices to be filled.

2.08.430 Payment of taxes and bills for services by candidates for elective office.

2.08.440 Disclosure of donors.

2.08.450 Municipal elections.

2.08.460 Conduct of municipal elections.

2.08.470 Ballot instructions for municipal elections

2.08.480 Vacancies

2.08.490 Effect on election ordinances

2.08.010 Nominations.

Except as provided in this section, all candidates for the offices of Mayor, Comptroller, President of the Board of Aldermen, and Alderman shall be nominated at a primary election by the direct vote of the qualified voters of the City of St. Louis or, in the case of candidates for the office of Alderman, the candidates shall be nominated by the direct vote of the qualified voters of the ward from which the Alderman is to be elected. If two (2) or fewer candidates have filed declarations of intent pursuant to Section 2.08.050 for the office of Mayor, Comptroller, President of the Board of Aldermen, or Aldermen there shall be no primary election and the two (2) candidates or candidate that have filed declarations of intent shall advance to the general election. If more than two (2) candidates have filed declarations of intent pursuant to Section 2.08.050 for the office of Mayor, Comptroller, President of the Board of Aldermen, or Aldermen and a candidate or candidates withdraw pursuant to Section 2.08.400 leaving two (2) or fewer candidates there shall be no primary election and the remaining two (2) candidates or candidate shall advance to the general election.
(1948 C., Ch. 20, § 7; 1960 C., § 76.010; 1994 C., § 2.08.010; Ord. No. 71736, § 1, 11-14-2023.)

RSMo:

RSMo 115.339 (2016) Nominations, how made

Cases:

A candidate for a city office in St. Louis at a general city election which is not held at the time of a general state election can be nominated as such candidate in a primary election only if he is a member of a political party. *Priesler v. City of St. Louis*, 322 S.W. 2d 748 (1959).

2.08.020 Primary—Date.

The primary election shall be held in the regular polling places in each precinct on the first Tuesday of August, 1944, and biennially thereafter for the nomination of candidates for elective City offices, if any, to be voted for at the next general state election. (1948 C., Ch. 20, § 8; 1960 C., § 76.020; 1994 C., § 2.08.020.)

RSMo:

RSMo 115.341 (2016) Primary elections, when held

2.08.030 Primary—Notice.

At least fifteen days prior to the last day for filing as a candidate in the primary herein provided for, the Board of Election Commissioners shall begin publication of a notice of the municipal primary provided for herein, which the notice shall designate the elective City officers, if any, to be nominated at the primary, a list of which shall be obtained from the City Register. The list shall be published once each week for four consecutive weeks in at least two and not to exceed four newspapers of general circulation in the City. (1948 C., Ch. 20, § 9; 1960 C., § 76.030; 1994 C., § 2.08.030.)

2.08.040 Primary—Supplemental notice.

In the event that any vacancy shall arise in any elective City office, subsequent to the time of the commencement of the publication of notice, the Board of Election Commissioners shall publish a supplementary notice designating such office and announcing that candidates therefor shall be nominated at the primary, the notice to conform as nearly as may be to the notice provided for in Section 2.08.030, having regard to limitations of time. (1948 C., Ch. 20, § 10; 1960 C., § 76.040; 1994 C., § 2.08.040.)

2.08.050 Declaration of intent.

The name of no candidate shall be printed upon any official ballot at any primary election held under the provisions of this chapter, unless at least sixty days prior to the primary a written declaration shall have been filed by the candidate, as provided in this chapter, stating his full name, residence, office for which he proposes as a candidate, the party upon whose ticket he is to be a candidate, that if nominated and elected to such office he will qualify, and the declaration shall be in substantially the following form:

I, the undersigned, a resident and qualified elector of the _____ precinct of the

_____ ward of the City of St. Louis and State of Missouri, do announce myself a candidate for the office of _____ on the _____ ticket, to be voted for at the primary election to be held on the first Tuesday in August _____ and I further declare that if nominated and elected to such office I will qualify.

(Signed) _____ (1948 C., Ch. 20, § 11; 1960 C., § 76.050; 1994 C., § 2.08.050.)

2.08.060 Candidate payment to political party.

Each candidate previous to filing declaration papers as prescribed by Section 2.08.050 shall pay to the treasurer of the city central committee of the political party upon whose ticket he/she proposes to run as a candidate and seeks nomination, one percent (1%) of the annual salary of the office for which he/she is a candidate, take a receipt therefor, and file such receipt with and at the same time he/she files his/her declaration papers. The sums of money, so paid by the several candidates, shall be evidence of their good faith in filing declaration papers, and shall be used as an expense fund by the several political parties upon whose tickets the various candidates propose to run as candidates and seek nomination after such nominations are made. It is the intent of this section that no sums or parts of the money so paid shall be used by such treasurer or other member of such committee, or other person, to procure or to defeat the nomination of any candidates who file declarations and seek nomination under the provisions of this chapter.

The required filing fee described in the preceding paragraph may be submitted by the candidate to the Board of Election Commissioners at the time the candidate files his/her declaration of candidacy. All sums so submitted shall be forwarded promptly by the Board of Election Commissioners to the appropriate party city central committee treasurer. (1948 C., Ch. 20, § 12; 1960 C., § 76.060; 1994 C., § 2.08.060; Ord. No. 70864, § 1, 12-3-2018; Ord. No. 58267, § 2, 1981.)

RSMo:

RSMo 115.357 (2016) Filing fees—declaration of inability to pay, form of

2.08.070 Independent candidate payment.

Any person desiring to file declaration papers, or propose as a candidate on any independent or nonpartisan ticket, who does not announce by declaration papers as a candidate for any political party as defined by law, and is not a member of a political party having a state or city committee, or treasurer thereof, shall pay the sum of money required by this chapter to be paid by the candidate for the office for which he proposes to the Treasurer of the City; take a receipt therefor, and file this receipt with his declaration papers. The sum of money, so paid, shall go into the general revenue fund of the City. (1948 C., Ch. 20, § 13; 1960 C., § 76.070; 1994 C., § 2.08.070.)

2.08.080 One declaration per candidate—Filing.

No person shall file more than one written declaration indicating the party designation under which his name is to be printed on the ballot of candidates for elective City offices. All declaration papers shall be filed with the Board of Election Commissioners. (1948 C., Ch. 20, § 14; 1960 C., § 76.080; 1994 C., § 2.08.080.)

RSMo:

RSMo 115.351 (2016) Candidate may not file for more than one office

2.08.090 Election notice—Contents—Publishing.

The Board of Election Commissioners shall publish, under the proper party designation, the title to each office, the name and addresses of all persons who shall have filed declaration papers, the date of the primary, the hours during which the polls will be open and that the primary will be held at the regular polling places in each precinct. It shall be the duty of the Board to publish the notice for three consecutive weeks next prior to the primary. (1948 C., Ch. 20, § 15; 1960 C., § 76.090; 1994 C., § 2.08.090.)

2.08.100 Election notice—Publishing requirements.

Each publication required in this chapter shall be made in not less than two newspapers of general circulation; one of the newspapers shall represent the political party that cast the largest vote in the City at the preceding election and one of the newspapers shall represent the political party that cast the next largest vote at such election. In any case where the publication of notice cannot be made as hereinbefore required, it may be made in any newspaper having a general circulation in the City. (1948 C., Ch. 20, § 16; 1960 C., § 76.100; 1994 C., § 2.08.100.)

RSMo:

RSMo 115.127 (2016) Notice of elections, how, when given

2.08.110 Ballots—Candidates names.

A ballot for candidates for elective City offices to be voted on at the next general state election shall be printed and provided for use at each voting precinct in the form provided herein. The names of all such candidates, who shall have filed declaration papers as prescribed in this chapter, shall be printed thereon. (1948 C., Ch. 20, § 17; 1960 C., § 76.110; 1994 C., § 2.08.110.)

RSMo:

RSMo 115.237 (2016) Ballots, contents of—form of

2.08.120 Ballots—Sample—Distribution.

At least twenty (20) days before the primary election herein provided for is held, the Board of Election Commissioners shall prepare sample ballots, placing thereon in the order in which they will appear on the official ballot, under the appropriate title of each office and party designation, the names of all candidates to be voted for. The sample ballot shall be printed upon tinted or colored paper, and shall contain no blank endorsement or certificate. The Board of Election Commissioners shall forthwith submit the ticket of each party to the chairman of the city central committee, and mail a copy to each candidate to his post office address, as given in his declaration paper, and they shall post a copy of each sample ballot in a conspicuous place in their office. On or before the tenth day before the holding of any primary election, the Board of Election Commissioners shall correct any errors or omissions in the ballots, cause the same to be printed and distributed, as required by law in the case of ballots for the general election, except that the number of ballots to be furnished to each precinct shall be one and a half times the number of votes cast by any party in the past preceding election and having nominees and tickets at such primary election. (1948 C., Ch. 20, § 18; 1960 C., § 76.120; 1994 C., § 2.08.120; Ord. No. 70865, § 1, 12-3-2018.)

2.08.130 Primary expenses.

All ballots, blanks and other supplies to be used at any primary election held under the provisions of this chapter, and all expenses necessarily incurred in the preparation for or in conducting such primary, shall be paid out of the Treasury of the City. (1948 C., Ch. 20, § 19; 1960 C., § 76.130; 1994 C., § 2.08.130.)

RSMo:

RSMo 115.061 et seq. (2016) Costs of elections

2.08.140 Tickets.

At all primaries there shall be as many separate tickets as there are parties entitled to participate in the primary election. There shall also be a nonpartisan ticket, upon which, under appropriate title of each office, shall be printed the names of all persons by whom declaration papers shall have been filed, as required by this chapter, who do not announce by declaration papers as candidates for any political party, as defined by this chapter. The names of all candidates shall be arranged under the appropriate title of the respective offices, and under the proper party designation upon the party ticket, and upon the nonpartisan ticket, as the case may be. The names of the candidates for each office shall be so altered on the ballots used in the several election precincts, that each name shall appear thereon substantially an equal number of times at the top, at the bottom and in each intermediate place, if any, of the lists or group of names in which the candidate's name belongs, and all officers charged with the preparation and distribution of ballots shall cause the printer's forms to be so transposed and the ballots so made up as to carry out the intent of this provision. If any elector writes upon his ticket the name of any person who is a candidate for the same office upon some other ticket than that upon which his name is so written, this ballot shall not be counted for such person. On any day of nomination of elective City officers in any primary election precinct, each qualified elector shall be entitled to receive from the judges of the election one ballot of the political party participating in the election for which he desires to vote. It shall be the duty of such judges of election to deliver the ballot to the electors. Before delivering any ballot to the elector, the two judges of election having charge of the ballot shall write their names or initials upon the back of the ballot with indelible pencil, and no other writing shall be on the back of the ballot except the number of the ballot voted. (1948 C., Ch. 20, § 20; 1960 C., §§ 76.140, 76.150; 1994 C., § 2.08.140.)

2.08.150 Exception to printed ballot.

Whenever any person shall have filed as a candidate for nomination upon a party ticket which, at the last preceding election for governor, shall have cast less than five percent of the total vote cast for governor in the election, and when not more than one person shall have filed as a candidate for any office on the party ticket, no ballot shall be printed for the primary election herein provided unless upon petition of at least ten per cent of the voters voting in the City at the preceding election for governor. When no ballots are printed as

hereinbefore provided the candidates filing declarations and who are unopposed shall be certified, as provided in this chapter, as the nominees of the party casting less than five percent of the vote of the state. (1948 C., Ch. 20, § 21; 1960 C., § 76.160; 1994 C., § 2.08.150.)

2.08.160 Vacancies of nominee.

Vacancies resulting from the death or resignation of the nominee of a party at a primary shall be filled by the central committee in the city of the party; provided, however, that no name shall be allowed on any ticket until the required fee shall have been paid. (1948 C., Ch. 20, § 22; 1960 C., § 76.170; 1994 C., § 2.08.160.)

2.08.170 Voter qualifications.

No person shall be entitled to vote at any primary unless a qualified elector of the precinct and duly registered therein and known to affiliate with the political party named at the head of the ticket he calls for, and attempts to vote, or obligates himself to support the nominees of such party at the following election. (1948 C., Ch. 20, § 23; 1960 C., § 76.180; 1994 C., § 2.08.170.)

RSMo:

RSMo 115.133 et seq. (2016) Qualifications of voters and registration

2.08.180 Challengers and witnesses.

The challengers and witnesses for a primary election to be held under the provisions of this chapter shall be the challengers and witnesses designated for the general state primary. (1948 C., Ch. 20, § 24; 1960 C., § 76.190; 1994 C., § 2.08.180.)

2.08.190 Rejection of ballot—Party change.

It shall be the duty of the challenger to challenge and the duty of the judges of election to reject the ballot of any person attempting to vote other than the ticket of the party with which he is known to be affiliated, unless such person, when challenged, obligates himself, by oath or affirmation, administered by one of the judges, to support the party nominees of the ticket he is voting in the following election. All judges of the election shall have authority and are empowered to administer such oath or affirmation, and any person offering to vote who shall fail or refuse to take or make such oath or affirmation when demanded by such challenger, or required by any judge, shall not be allowed to vote at such primary election. (1948 C., Ch. 20, § 25; 1960 C., § 76.200; 1994 C., § 2.08.190.)

Ops. Atty. Gen.:

Any questions of doubt concerning the identity of a voter who signs a comparative signature card must be decided against the voter by a majority of judges of election in the precinct before he may be denied the right to vote. No. 128, June 1, 1964.

2.08.200 Canvass of votes.

The canvass of votes shall be made in the same manner and by the same officers as the canvass of an election. The party chairman of the City, or some duly appointed agent to represent each party, shall be allowed to be present and observe the proceedings. (1948 C., Ch. 20, § 26; 1960 C., § 76.210; 1994 C., § 2.08.200.)

RSMo:

RSMo 115.447 et seq. (2016) Counting of votes

2.08.210 Returns—Required.

The precinct judges and clerks of election shall immediately after the canvass of the ballot cast, on blanks to be provided for that purpose by the Board of Election Commissioners, make full and accurate returns of the votes cast for each candidate to the Board of Election Commissioners. (1948 C., Ch. 20, § 27; 1960 C., § 76.220; 1994 C., § 2.08.210.)

2.08.220 Returns—Procedure.

The canvass of the returns of such primary shall be made by the same officers, and in the manner as now provided by law, for the canvass of returns of a November election. The canvassers shall meet and canvass such returns at ten o'clock on the Friday following the primary. Their returns shall contain the whole number of votes cast for each candidate for each political party, and a duplicate as to each political party shall be delivered to the chairman of such party. (1948 C., Ch. 20, § 28; 1960 C., § 76.230; 1994 C., § 2.08.220.)

2.08.230 Party candidate—Determination.

The person receiving the greatest number of votes at a primary as the candidate of a party for an office shall be the candidate of that party for such office and his name as such candidate shall be placed on the ballot for elective City officers to be elected at the following election. (1948 C., Ch. 20, § 29; 1960 C., § 76.240; 1994 C., § 2.08.230.)

2.08.240 Party candidate—Ties.

In case of a tie vote, the tie shall forthwith be determined by lot by the canvassers. (1948 C., Ch. 20, § 30; 1960 C., § 76.250; 1994 C., § 2.08.240.)

RSMo:

RSMo 115.515—115.519 (2016) Tie votes

2.08.250 Board of Election Commissioners to prepare blanks.

It shall be the duty of the Board of Election Commissioners to prepare and have printed for primary elections, blanks for carrying out the provisions of this chapter. (1948 C., Ch. 20, § 31; 1960 C., § 76.260; 1994 C., § 2.08.250.)

RSMo:

RSMo 115.403 (2016) Forms to be provided by secretary of state, when

2.08.260 Designation of judges and clerks.

Judges and clerks for primary elections held under the provisions of this chapter shall be the judges and clerks designated for the general state primary. (1948 C., Ch. 20, § 32; 1960 C., § 76.270; 1994 C., § 2.08.260.)

2.08.270 Declaration of results—Certificate of nomination.

Immediately upon the completion of the canvass of the returns of the primary election, the Board of Election Commissioners shall declare the result and issue a certificate of nomination to each person on each party ticket receiving the highest number of votes for nomination for an office. (1948 C., Ch. 20, § 33; 1960 C., § 76.280; 1994 C., § 2.08.270.)

RSMo:

RSMo 115.523 (2016) Certificates of nomination to issue, when

2.08.280 Statutes regulating elections to apply to primaries.

The provisions of the statutes now in force in relation to the holding of elections, for solicitation of voters at the polls, the challenging of votes, the manner of conducting elections, of counting the ballots and making the returns thereof, and all other kindred subjects, shall apply to all primaries held under the provisions of this chapter. (1948 C., Ch. 20, § 34; 1960 C., § 76.290; 1994 C., § 2.08.280.)

2.08.290 Vacancies occurring after last day for filing.

Whenever a vacancy shall occur in any elective City office fifty days or more prior to a general state election and subsequent to the last day for filing in the primary for candidates for elective City offices as fixed by Section 2.08.050, the political central committees of the City recognized by the laws of the State of Missouri are authorized each to nominate by a vote of a majority of the central committee, including in such committee any successor of any member, which successor has been recognized as such successor by such committee, a person of the same political belief and party as the nominating committee, and having the qualifications to hold such office. (1948 C., Ch. 20, § 35; 1960 C., § 76.300; 1994 C., § 2.08.290.)

2.08.300 Central committees to file certificate of nomination.

It shall be the duty of central committees to certify to the Board of Election Commissioners, not less than fifteen days before the date set for the general state election, the name of the person nominated, the office for which he shall have been nominated and the party which such nominee shall represent. The certificate of nomination shall be signed and executed by the presiding officer and secretary of the central committee making such nomination; provided, that in case of the inability of the presiding officer or secretary of any central committee to perform such duty, the officer thereof next in rank or all the remaining officers shall sign and execute the certificate of nomination, which shall be accepted as if executed by the presiding officer and secretary. (1948 C., Ch. 20, § 36; 1960 C., § 76.310; 1994 C., § 2.08.300.)

2.08.310 Nominees to be placed on ballot.

It shall be the duty of the Board of Election Commissioners to place upon the ballot, as candidates of such parties, the names certified to them in accordance with the provisions of Section 2.08.300; provided, however, that no name of any candidate shall be placed upon the ballot until the candidate shall exhibit to the Board of Election Commissioners a receipt from the central committee evidencing payment of a filing fee in the amount fixed by Section 2.08.060. (1948 C., Ch. 20, § 37; 1960 C., § 76.320; 1994 C., § 2.08.310.)

2.08.320 Provisions for nomination—Candidates of parties having no central committee.

If any party or group, political or otherwise, which shall have cast five percent or more of the total votes cast for governor in the last preceding election, shall not have a political central committee recognized as

such by the laws of Missouri, the committees or groups representing such parties or groups are authorized to nominate candidates for elective city offices and certify their names to the Board of Election Commissioners as provided in Sections 2.08.290 and 2.08.300 in the case of political central committees recognized as such by the laws of the State of Missouri, and the names of such candidates shall be placed on the ballot as candidates of such parties or groups; provided, such candidates shall exhibit to the Board of Election Commissioners receipts evidencing payment, to such parties or groups, of the filing fee fixed by Section 2.08.060. (1948 C., Ch. 20, § 38; 1960 C., § 76.330; 1994 C., § 2.08.320.)

2.08.330 Provisions for nomination—Nonpartisan candidate.

Nonpartisan candidates may be nominated by a certificate signed by registered electors of the city to a number equal to two percent of the entire vote cast at the last preceding election of a mayor; provided that the signer shall declare, in such certificate, that they are bona fide supporters of the candidate sought to be nominated, and have not aided, and will not aid, in the nomination of any other candidate for an elective city office. Such certificates of nomination by electors shall be filed in the office of the Board of Election Commissioners not less than the eighth Monday before the election. The names of persons nominated by certificate signed by electors shall be placed on the ballot, each under the heading "Nonpartisan Candidate."

Before the name of any nonpartisan candidate shall be placed on the ballot as aforesaid, the candidate shall exhibit to the Board of Election Commissioners a receipt evidencing payment to the City Treasurer of the filing fee fixed by Section 2.08.060. (1948 C., Ch. 20, § 39; 1960 C., § 76.340; 1994 C., § 2.08.330; Ord. No. 66193, § 2, 2004.)

2.08.340 Substitute candidates.

In the event of the death or withdrawal of any candidate whose name has been certified to the Board of Election Commissioners as a candidate for an elective city office, the political central or ward committee, or party or group, shall certify the name of another candidate to the Board of Election Commissioners in accordance with the provisions of this chapter at any time prior to the election and such name shall be placed on the ballot in lieu of the name of such candidate. In the event of the death or withdrawal of a candidate nominated by a certificate signed by electors, the name of another nonpartisan candidate may be certified in lieu thereof at any time prior to the election by any group of electors to a number equal to two percent of the entire vote cast at the last preceding election of a mayor. (1948 C., Ch. 20, § 40; 1960 C., § 76.350; 1994 C., § 2.08.340.)

2.08.350 Primary elections of City officers to be separate from general state primary.

At all primary elections held under the provisions of this chapter there shall be separate ballots containing the names of candidates for elective City offices only and the Board of Election Commissioners shall provide separate boxes for such ballots and shall endeavor as far as practicable to conduct the primary herein provided for as a separate primary distinct from the general state primary. (1948 C., Ch. 20, § 41; 1960 C., § 76.360; 1994 C., § 2.08.350.)

2.08.360 General state elections to be separate from election of candidates for City offices.

At all general state elections at which candidates for elective offices may be voted for there shall be separate ballots containing the names of candidates nominated in accordance with the provisions of this chapter only and the Board of Election Commissioners shall provide separate boxes for such ballots and shall endeavor as far as practicable to conduct the election of candidates for City offices as a separate election distinct from the general state election. (1948 C., Ch. 20, § 42; 1960 C., § 76.370; 1994 C., § 2.08.360.)

2.08.370 Change of date of filing declaration of candidacy.

If the state law governing primary elections shall be amended so as to change the last day for filing written declarations by candidates in any general primary election to be held on the first Tuesday of August, then and in such event the last day for filing in the primary herein provided for shall be advanced so as to conform to the date fixed by such amendment to the general primary law of the state. (1948 C., Ch. 20, § 43; 1960 C., § 76.380; 1994 C., § 2.08.370.)

2.08.380 RSMo 122.650 and 122.660 (1969).

The provisions, terms and conditions contained and set forth in RSMo 122.650 and 122.660(1969) are accepted. (1960 C., § 76.390; 1994 C., § 2.08.380; Ord. No. 50111, § 1, 1960.)

2.08.390 Election statutes incorporated.

RSMo 122.670, 122.680, 122.710, 122.720, 122.740, 122.750, 122.760, 122.770, 122.780, 122.790, 122.800, 122.810, 122.820, 122.830, 122.840, 122.850, 122.860, 122.870, 122.880, 122.890, 122.900, 122.910, 122.920, 122.930, 122.940, 122.950, and 122.960 are incorporated by reference into this Code set forth in full, the aforesaid provisions, terms and conditions shall be deemed to be in full force and effect. (1960 C., § 76.400; 1994 C., § 2.08.390; Ord. No. 55836, § 1(part), 1971; Ord. No. 50111, § 2, 1960.)

City Counselor Ops.: 8635, 8636, 8718

Editor's Note:

RSMo 122.670 et seq. was as follows on the date of incorporation:

ST. LOUIS CITY—NOMINATIONS

Registration and conduct of elections in city of St. Louis, RSMo ch. 118

For case notes, see Vol. III RSMo 1940

122.670. Definition and construction of sections 122.650 to 122.970.—Whenever the provisions of this law in operation prove to be of doubtful or uncertain meaning, or not sufficiently explicit in directions and details, the general laws of Missouri, and especially the election and registration laws, and the customs, practice, usage and forms thereunder, in the same circumstances or under like conditions, shall be followed in the construction and operation of this law, to the end that the protection of the spirit and intention of said laws shall be extended so far as possible to all primary nominating elections provided by sections 122.650 to 122.970.

(RSMo 1939 §11744)

Prior revisions: 1929 §10437; 1919 §4989

Registration and conduct of elections in city of St. Louis, RSMo ch. 118

122.680. Nominations, how made—exceptions.—Hereafter all candidates for elective offices other than those to be elected at a general state election and all special elections to fill vacancies in cities of this state which now have or which hereafter acquire four hundred thousand inhabitants or more, shall be nominated at a primary election by the direct vote of the qualified voters of such cities or by certificates of election, in accordance with the provisions of sections 122.650 to 122.970. A political party, within the meaning of sections 122.650 to 122.970, is an affiliation of electors representing a political party or organization which at the last preceding general state election before such primary polled as a party at least three per cent of the entire vote cast in such city for the office of governor elected at such preceding election. The term "nonpartisan candidate", within the meaning of sections 122.650 to 122.970, shall apply to all candidates who shall be nominated by a certificate signed by electors, as in sections 122.650 to 122.970 provided. Nothing in sections 122.650 to 122.970 shall be understood to apply to the nomination or election of members of a board of freeholders to draft a new charter for such city or members of boards of education or shall apply in any way to school nominations or elections.

(RSMo 1939 §11745, A. 1949 H. B. 2058)

Prior revisions: 1929 §10438; 1919 §4990

(1959) Person seeking to run for city office on independent or nonpartisan ticket held required to be nominated either by a certificate of election signed by so many voters (§122.680) or by petition under §120.180. Such requirement does not deny equal rights under the law. Preisler v. City of St. Louis (Mo.), 322 S. W. (2d) 748.

For prior cases, see Vol. III RSMo 1949

122.690. City register to notify board of election commissioners of offices to be filled.—At least fifteen days before the time for holding such March primary election the city register shall prepare and transmit to the board of election commissioners in each city to which sections 122.650 to 122.970 are applicable a notice in writing, designating the offices to be filled at the succeeding city election and the yearly salaries of each.

(RSMo 1939 §11753)

Prior revisions: 1929 §10446; 1919 §4998

122.700. Board of election commissioners to make publication of list of offices to be filled.—Upon receipt of such notice such board of election commissioners shall, beginning within two days thereafter, cause to be published for two consecutive days a list of offices for which candidates are to be nominated at such primary in five newspapers of general circulation, published in the city in which such board of election commissioners are acting.

(RSMo 1939 §11754)

Prior revisions: 1929 §10447; 1919 §4999

122.710. Candidate to file declaration papers and pay filing fee.—Each candidate previous to filing declaration papers, as prescribed by sections 122.650 to 122.970, shall pay to the treasurer of the city central committee of the political party upon whose ticket he seeks nomination, a sum of money equal to two per cent of the salary for one year of the office for which he is a candidate. The candidate shall take a receipt therefor and file such receipt with his declaration papers. The sums of money so paid by the several candidates, shall be evidence of their good faith in filing declaration papers and shall be used, after the nominations are made, as an expense fund by the several political parties upon whose tickets the various candidates sought nomination. It is the intent of the law that no sums or parts of the money so paid in shall be used by such treasurer or other member of such committee, or other person or persons, to procure or to defeat the nomination of any candidate or candidates who file declarations and seek nomination under the provisions of sections 122.650 to 122.970.

(RSMo 1939 §11746, A. 1949 H. B. 2058)

Prior revisions: 1929 §10439; 1919 §4991

For case notes, see Vol. III RSMo 1949

122.720. Declaration papers.—No person shall file more than one written declaration indicating the party designa-

tion under which his name is to be printed on the official ballot, and it shall be unlawful for his name to appear on more than one ballot at said primary election. All declaration papers shall be filed with the board of election commissioners of the city, and declaration papers shall not be withdrawn. The names of candidates who do not so declare shall not be printed on the official primary ballot.

(RSMo 1939 §11748, A. 1949 H. B. 2058)

Prior revisions: 1929 §10441; 1919 §4993

For case notes, see Vol. III RSMo 1949

122.730. Declaration to be filed by candidate.—The name of no candidate shall be printed upon any official ballot at any primary election held under the provisions of sections 122.650 to 122.970 unless at least eleven days prior to such primary election and on or before nine o'clock p. m. of such day a written declaration shall be filed by the candidate, as herein provided, stating his full name, residence, occupation, in typewritten or printed words, and the office for which he proposes as a candidate, the party upon whose ticket he is to be a candidate, that if nominated and elected to such office he will qualify, and such declaration shall be substantially in the following form:

I, the undersigned _____ (a sufficient space in which to typewrite or print his name, residence and occupation), a resident and qualified elector of the ____ precinct of the ____ ward, in the city of _____, Missouri, do announce myself as a candidate for the office of _____ on the ____ ticket, to be voted for at the primary election to be held on the ____ day of March, ____, and I further declare that if nominated and elected to such office I will qualify. (Signed) _____

(RSMo 1939 §11755)

Prior revisions: 1929 §10448; 1919 §5000

122.740. Board of election commissioners shall publish names of candidates and other information preceding primary.—Such board of election commissioners shall publish, under the proper party designation, the title to each office, the names, addresses and occupations of all persons who shall have filed declaration papers, giving the name, address, and occupation of each, the date of the primary, the hours during which the polls will be open, that the primary will be held at the regular polling places in each precinct. It shall be the duty of such board to publish such notice for three consecutive days next prior to said primary.

(RSMo 1939 §11749)

Prior revisions: 1929 §10442; 1919 §4994

122.750. In what papers publication is to be made.—Each publication required in sections 122.650 to 122.970 shall be made in five English newspapers of general circulation in such city; one of such newspapers shall represent the political party that cast the largest vote in such city at the last preceding general election, and one of such newspapers shall represent the political party that cast the next largest vote in such city at the last preceding general election.

(RSMo 1939 §11750)

Prior revisions: 1929 §10443; 1919 §4995

122.760. Election commissioners to provide official ballot—definition of "primary."—The board of election commissioners shall cause to be printed for use at each voting precinct in the form provided herein an official ballot upon which the names of all the candidates for the respective offices, who shall have filed declaration papers, as herein provided, shall be printed, and "primary", as used in sections 122.650 to 122.970 shall apply to all primary nominating elections provided for by law.

(RSMo 1939 §11751)

Prior revisions: 1929 §10444; 1919 §4996

122.770. Board of election commissioners to have ballots printed and distributed.—Immediately after the last day and hour for filing declarations of candidates, as provided in sections 122.650 to 122.970, the board of election commissioners shall prepare and cause to be printed official primary ballots for each party as defined in sections 122.650 to 122.970, placing on each of said ballots, under the appropriate title of each office, and party designation, the names of all candidates to be voted for at such primary; the names of all candidates shall be arranged under the appropriate title of the respective offices and under the proper party designation upon the party ticket for which they have filed. The board of election commissioners shall provide for each election precinct in such city official primary ballots to a number equal to twice the number of registered voters in each respective precinct for each political party represented by candidates at the primary election and cause same to be delivered within twenty-four hours before the opening of the polls for the said primary election to the judges of election in the various precincts by delivering the same to the homes of such judges. The board of election commissioners shall retain, however, of the amount of ballots which they are to have printed for each political party represented at said primary election one-fourth of the number of ballots for each respective precinct, which shall be kept securely locked in the vault at the office of the board of election commissioners, to be used in case of emergency only.

(RSMo 1939 §11756)

Prior revisions: 1929 §10449; 1919 §5001

122.780. Challengers and watchers.—The challengers and watchers for primary elections held under sections 122.650 to 122.970 shall be appointed in the same manner and possess the same qualifications and consist of the same number of challengers and watchers as of general elections in this state.

(RSMo 1939 §11768)

Prior revisions: 1929 §10461; 1919 §5013

122.790. Judges and clerks.—The judges and clerks for primary elections held under sections 122.650 to 122.970 shall be appointed in the same manner and possess the same qualifications and consist of the same number as judges and clerks of general elections in this state, in cities to which sections 122.650 to 122.970 are applicable, and shall receive the same compensation, and the judges and clerks regularly appointed and commissioned for regular

elections, except in cases of vacancies, shall act in primary elections, held under this law during the term for which they were appointed.

(RSMo 1939 §11772)

Prior revisions: 1929 §10465; 1919 §5017

For case notes, see Vol. III RSMo 1949

122.800. Primary held, where, when.—The primary election shall be held at the polling places in each precinct, as near as may be, at which the succeeding election is to be held in cities to which this law is applicable on Tuesday of the fourth week preceding the election, and biennially thereafter, for the nomination of all candidates by electors, to be voted for at the next April election.

(RSMo 1939 §11752, A. L. 1955 p. 828)

Prior revisions: 1929 §10445; 1919 §4997

122.810. Qualifications of voters.—No person shall be entitled to vote at any primary unless a qualified elector of the precinct and duly registered therein, and known to affiliate with the political party named at the head of the ticket he calls for, or will make affidavit or furnish proper proof that he is affiliated with the party whose ticket he calls for, or obligates himself under oath to support the nominee of said party at the following city election.

(RSMo 1939 §11760)

Prior revisions: 1929 §10453; 1919 §5005

122.820. Tickets—how prepared—how voted.—At all primary elections there shall be as many separate tickets as there are parties entitled to participate in the primary election. The names of all candidates shall be arranged under the appropriate title of the respective offices and under the proper party designated upon the party ticket. However, the names of the candidates for each office shall be so alternated on the ballots used in the several wards that each name shall appear thereon substantially an equal number of times at the top, at the bottom and in each intermediate place, if any, of the list or group of names in which such candidate's name may belong. All officers charged with the preparation and distribution of ballots shall cause the printer's forms to be so transposed and the ballots so made up as to carry out the intent of this provision. The intent hereof being that the board of election commissioners shall arrange the names on the respective ballots differently in the respective wards of such city. If any elector writes upon his ballot the name of any person who is a candidate for the same office upon some other ticket than that upon which his name is so written, this ballot shall not be counted for such person. On any day of nomination of public officers in any primary election precinct, each qualified elector shall upon application be entitled to receive from the judge of election one ballot of the political party participating in such election for which he desires to vote. It shall be the duty of such judges of election to deliver such ballot to the electors. Before delivering a ballot to an elector the two judges of election having charge of the ballot shall write their names or initials upon the back of the ballot with indelible pencil, and no other writing shall be on the back of the ballot except as provided by law.

(RSMo 1939 §11758, A. 1949 H. B. 2058)

Prior revisions: 1929 §10451; 1919 §5003

122.830. Votes counted—who may be present.—The canvass of the votes polled at such primary election in a precinct shall be made in the same manner and by the same officer as provided by law in case of elections held to fill public offices. The party chairman of each political party of the city, or some duly appointed agent to represent each party, shall be allowed to be present and observe the proceedings in the precinct canvassed.

(RSMo 1939 §11761)

Prior revisions: 1929 §10454; 1919 §5006

122.840. Returns, how made and to whom.—The precinct judges and clerks of election shall immediately after the canvass of the ballots cast, on blanks to be provided for that purpose by the election commissioners, make full and accurate returns of the votes cast for each candidate to the board of election commissioners.

(RSMo 1939 §11762)

Prior revisions: 1929 §10455; 1919 §5007

122.850. Canvass of returns, how conducted.—The canvass of the precinct of a primary shall be made by the board of election commissioners and in the manner as now provided by law, for the canvass of returns of a November general election. The board shall meet and begin the canvass of such returns at ten o'clock on the Monday following the primary. These returns shall set out the whole number of votes cast for each candidate of each political party and a duplicate of the total votes cast for the candidates of each political party shall be mailed postage prepaid to the chairman of the city committee of such party to his last known address.

(RSMo 1939 §11763)

Prior revisions: 1929 §10456; 1919 §5008

122.860. Tie, how decided.—In case of a tie vote, the candidates having such equal number of votes shall immediately determine by lot in the presence of the election commissioners and in such manner as they may designate which shall be the nominee.

(RSMo 1939 §11766)

Prior revisions: 1929 §10459; 1919 §5011

122.870. Election commissioners to declare result and issue nomination certificate.—Immediately upon the completion of the canvass of the returns of the primary election, the election commissioners shall declare the result and issue a certificate of nomination to each person on each party ticket receiving the highest number of votes for nomination for an office.

(RSMo 1939 §11769)

Prior revisions: 1929 §10462; 1919 §5014

122.880. Whose name shall appear on official ballot as nominee.—The person receiving the greatest number of votes at a primary as the candidate of a party for an office shall be the candidate of that party for such office and his name as such candidate shall be placed on the official ballot at the following election.

(RSMo 1939 §11764)

Prior revisions: 1929 §10457; 1919 §5009

For case notes, see Vol. III RSMo 1949

122.890. Platform, how made.—On the first Friday following said primary election the nominee of each party chosen at such primary election, at such convenient place as may be designated by the chairman of the city central committee of such party, in cities to which sections 122.650 to 122.970 are applicable, shall meet and forthwith formulate a city platform for their party and make public the same not later than six o'clock in the afternoon of the following day.

(RSMo 1939 §11765)

Prior revisions: 1929 §10458; 1919 §5010

122.900. Vacancies, how filled.—Vacancies occurring after the holding of any primary, or where no person shall offer himself as a candidate before such primary, shall be filled by the party committee of such city; provided, however, that no name shall be allowed on any ticket until the required fee shall have been paid.

(RSMo 1939 §11759)

Prior revisions: 1929 §10452; 1919 §5004

For case notes, see Vol. III RSMo 1949

122.910. Election conducted at public expense.—All ballots, blanks and other supplies to be used at any primary election held under the provisions of sections 122.650 to 122.970, and all expenses necessarily incurred in the preparation for and in conducting such primary, including clerical help, and an assistant at such compensation as the board of election commissioners may fix, shall be paid out of the treasury of the city and by the same officers as in case of elections, and the board of election commissioners shall at once prepare its estimate showing the amount necessary to appropriate for such primary election, and it shall be mandatory for the officers charged with such duties, and the common council of cities to which this law is applicable, to appropriate the money required by such board, and such board shall audit and approve all such expenses as are by it incurred and deemed necessary, and shall draw its warrant for the same on the treasurer of said city, and such treasurer shall pay out of the treasury such warrants and retain the same as his vouchers. If the officers of such cities shall fail or refuse to appropriate such money upon the demand of the board of election commissioners, the treasurer shall pay such warrants and charge the same to any fund not otherwise appropriated.

(RSMo 1939 §11757)

Prior revisions: 1929 §10450; 1919 §5002

122.920. Board of election commissioners to prepare forms.—It shall be the duty of the board of election commissioners to prepare and have printed for primary election blanks for carrying out the provisions of sections 122.650 to 122.970.

(RSMo 1939 §11767)

Prior revisions: 1929 §10460; 1919 §5012

122.930. Nonpartisan candidates, how nominated.—Hereafter all "nonpartisan candidates" for elective city and municipal offices, for which the nomination of candidates of political parties are required to be made by a primary nominating election held under the provisions of sections 122.650 to 122.970, shall be nominated by a certificate signed by registered electors residing within the city or political division for which the candidate is presented to a number equal to two per cent of the entire vote cast for mayor at the last preceding election in the city or division for which the nomination is made; provided, that signers shall declare in said certificate that they are *bona fide* supporters of the candidate or candidates sought to be nominated and have not aided and will not aid in the nomination of any other candidate or candidates for the same office or offices. Said certificates of nominations by electors shall be filed in the office of the board of election commissioners for such city not less than fifteen days before the election.

(RSMo 1939 §11770)

Prior revisions: 1929 §10463; 1919 §5015

122.940. Filing fee of nonpartisan candidate.—Any person or persons filing certificates signed by electors for "nonpartisan candidates" as provided in section 122.930 shall pay the same sum of money required by law to be paid by any candidate of a political party for the office for which he proposes to the city treasurer, take a receipt therefor and file said receipt with his certificate of nomination; said sum of money so paid shall go into the general revenue fund of the city.

(RSMo 1939 §11747)

Prior revisions: 1929 §10440; 1919 §4992

122.950. Nonpartisan candidates—ballot.—The names of persons nominated by certificate signed by electors shall be placed on an official ballot at the following election under the heading "nonpartisan candidate" or "nonpartisan candidates".

(RSMo 1939 §11771)

Prior revisions: 1929 §10464; 1919 §5016

122.960. Applicability of statutes relating generally to conduct of elections and penalties.—The provisions of the statutes now in force in relation to the holding of elections, the solicitation of voters at the polls, the challenging of votes, the manner of conducting elections, of counting the ballots and making the returns thereof, and all other kindred subjects, shall apply to all primaries insofar as they are consistent with sections 122.650 to 122.970; the intent of this law being to place primary elections in cities to which sections 122.650 to 122.970 are applicable under the regulation and protection of the law now in force as to general elections. Any statute declared to be an offense by the general laws of this state concerning caucuses and elections shall also, in like case, be an offense in all primaries held under the provisions of sections 122.650 to 122.970 and shall be punished in the same form and manner as therein provided, and all the penalties and provisions of the law as to such caucuses and elections, except as herein otherwise provided, shall apply in such cases with equal force and to the same extent as though fully set forth in sections 122.650 to 122.970.

(RSMo 1939 §11773)

Prior revisions: 1929 §10466; 1919 §5018

For case notes, see Vol. III RSMo 1949

122.970. Penalty.—Any person violating any of the provisions or requirements of sections 122.650 to 122.970 for which no other or different punishment is prescribed shall be guilty of a felony and upon conviction be punished by imprisonment in the state penitentiary for a term of not less than two nor more than five years.

(RSMo 1939 §11774) Prior revisions: 1929 §10467; 1919 §5019

2.08.400 Filing and withdrawal.

A. *Time and Procedure for Filing a Declaration of Candidacy.* The name of no candidate shall be printed upon any official ticket or ballot at any primary election held under the provisions of this chapter unless at least sixty (60) days prior to such primary election and on or before five p.m. of such day, but not before one hundred (100) days prior to such primary election at eight a.m. of such day, a written declaration of candidacy shall be filed by the candidate stating the candidate's full name, as it appears on his or her voter registration card, residence and occupation, the office for which he or she proposes as candidate, the party upon whose ticket he or she is to be a candidate, in typewritten or printed words, that the candidate and members of his or her family have received no personal remuneration, or any personal gift, or other personal favor or promise for his or her filing such declaration of candidacy; and that if nominated and elected, to such office the candidate will qualify. Such declaration of candidacy shall be substantially in the following form:

I, the undersigned _____ (sufficient space in which to typewrite or print the candidate's name, residence and occupation), a resident and qualified elector of the _____ precinct of the _____ ward, in the City of St. Louis, Missouri, do announce myself as a candidate for the office of _____ on the _____ ticket, to be voted for at the primary election to be held on the _____ day of March, _____, and I declare that neither I, nor any member of my family, has received any personal remuneration, or any personal gift, or other personal favor or promise for filing this declaration; and I further declare that if nominated and elected to such office I will qualify.

Signed

B. *Withdrawal of Candidacy, Deadline for, How Made.*

1. Any person who has filed a declaration of candidacy for nomination and who wishes to withdraw as a candidate shall, not later than fifty (50) days prior to such primary election on or before five p.m. of such day, file a written, sworn statement of withdrawal in the office of the official who accepted his or her declaration of candidacy.

2. The name of a person who has filed a declaration of candidacy who has not given notice of withdrawal as provided in Subsection B.1 of this section, shall be printed on the official primary ticket or ballot. (1960 C., § 76.410; 1994 C., § 2.08.400; Ord. No. 70866, § 1, 12-3-2018; Ord. No. 59982, § 1, 1986; Ord. No. 55836, § 1(part), 1971; Ord. No. 50111, § 3, 1960.)

City Counselor Ops.: 8635, 8636, 8718

2.08.410 City Register duties.

At least one hundred and twenty days before the time for holding such March primary election the City Register shall prepare and transmit to the Board of Election Commissioners of the City a notice in writing, designating the offices to be filled at the succeeding City election and the yearly salaries of each. (1960 C., § 76.420; 1994 C., § 2.08.410; Ord. No. 59982, § 2, 1986; Ord. No. 55836, § 1(part), 1971; Ord. No. 50111, § 4, 1960.)

City Counselor Ops.: 8635, 8636, 8718

2.08.420 Publication of list of offices to be filled.

Upon receipt of such notice, the Board of Election Commissioners shall, beginning within seven days thereafter, cause to be published for two consecutive days a list of offices for which candidates are to be nominated at the primary in three newspapers of general circulation, published in the City in which the Board of Election Commissioners is acting. (1960 C., § 76.430; 1994 C., § 2.08.420; Ord. No. 55836, § 1(part), 1971.)

City Counselor Ops.: 8635, 8636, 8718

2.08.430 Payment of taxes and bills for services by candidates for elective office.

1. Any individual who is delinquent in the filing or payment of any of the following taxes or bills for services shall be prohibited from filing as a candidate for an elected public office of the City of St. Louis:

(1) Personal property tax;

(2) Real property tax on properties located in the City of St. Louis that are wholly or partially owned by the individual filing for elected office;

(3) City of St. Louis earnings tax; and

(4) City of St. Louis water and refuse bills.

2. Any individual filing as a candidate for an elected public office of the City of St. Louis shall, at the time of their filing, provide the Board of Election Commissioners with proof they are not delinquent in the filing or payment of any of the taxes or bills for services set forth in subsection 1 of this Section 2.08.430, which proof shall be provided in the form and manner specified in subsections 3 and 4 of this Section 2.08.430.

3. Any individual filing as a candidate for an elected public office of the City of St. Louis shall, at the time of their filing, file an affidavit with the Board of Election Commissioners in substantially the same form as set forth in subsection 4 of this Section 2.08.430, and shall attach thereto:

(1) Official copies of receipts or statements of no taxes due from the Collector of Revenue evidencing the individual is not delinquent in the payment of any of the taxes set forth in subsection 1 of this Section 2.08.430; and

(2) Official statements from the Collector of Revenue evidencing the individual is not delinquent in the payment of any of the bills for services set forth in subsection 1 of this Section 2.08.430.

4. Affidavit.

AFFIRMATION OF PAYMENT OF TAXES AND BILLS FOR SERVICES

I, [full legal name of candidate], hereby declare and affirm under penalties of perjury that I am not delinquent in the filing or payment of any personal property tax, real property tax on properties located in the City of St. Louis that are wholly or partially owned by me, City of St. Louis earnings tax, and City of St. Louis water and refuse bills.

As evidence of the foregoing, I have attached hereto: official copies of receipts or statements of no taxes due from the Collector of Revenue evidencing that I am not delinquent in the filing or payment of any personal property tax, real property tax on properties located in the City of St. Louis that are wholly or partially owned by me, and City of St. Louis earnings tax; and official statements from the Collector of Revenue evidencing that I am not delinquent in the payment of City of St. Louis water and refuse bills.

Date:

_____

Candidate's Signature

_____

Printed Name

5. Any individual who fails to comply with the requirements of this chapter shall be prohibited from filing as a candidate for an elected public office of the City of St. Louis until they have met said requirements, and subject to City of St. Louis ordinances governing the timing for candidates to file for an elected public office of the City of St. Louis.

6. The Board of Election Commissioners shall ensure that individuals who do not meet the requirements of this chapter are not allowed to file as candidates for an elected public office of the City of St. Louis until said requirements have been met, and subject to City of St. Louis ordinances governing the timing for candidates to file for an elected public office of the City of St. Louis.

7. On the day immediately following the last day on which individuals may file as candidates for an elective public office of the City of St. Louis the Collector of Revenue shall notify the Board of Election Commissioners in writing if any candidates are delinquent in the filing or payment of any personal property taxes, real property taxes on any real property located within the City of St. Louis and owned in whole or in part by the candidate, earnings taxes, or the payment of City of St. Louis water and refuse bills. In the event that a candidate is delinquent in the payment of any of the foregoing taxes or bills such candidate's name shall not be placed on the ballot, and such candidate shall be barred from participating in the current election and, if the current election is a primary election, barred from refiling as a candidate for the same office or any other elected office of the City of St. Louis in the subsequent general election and shall not have recourse to the remedial actions provided under subsection 8 of this Section 2.08.430.

8. At any time, upon receipt of a written complaint alleging a delinquency of a candidate in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by the candidate, earnings taxes, or in the payment of City of St. Louis water and refuse bills the Board of Election Commissioners shall investigate such candidate to verify the claims contained in the complaint. If the Board of Election Commissioners finds such claims to be true, they shall notify the candidate in writing of the outstanding taxes or bills for City of St. Louis water and refuse services

due and give the candidate seven (7) days following the candidate's receipt of notice to remit payment in full of any such outstanding taxes or bills owed which were not theretofore the documented subject of dispute between the respective department and the candidate, and provide the Board of Election Commissioners with proof thereof in the form of official receipts or statements of no taxes due from the Collector of Revenue evidencing payment of such taxes or bills. The notice shall be sent via U.S. Postal Service certified mail return receipt requested to the address provided by the candidate on the candidate's declaration of candidacy and shall be deemed received seventy-two (72) hours after mailing. If the candidate fails to remit payment in full of such amounts within the seven (7) day period, the candidate shall be disqualified from participating in the current election and, if the current election is a primary election, barred from refiling as a candidate for the same office or any other elected office of the City of St. Louis in the subsequent general election even if the candidate pays all outstanding taxes or bills owed that were the subject of the complaint. Any such complaint must be filed no later than two (2) weeks prior to the election, provided that any complaint filed later than seven (7) weeks before the election that is later found to be true will result in disqualification of the candidate but may not necessarily result in the candidate's name being physically removed from the ballot.

9. Nothing herein shall either preclude or require an independent investigation by the Board of Election Commissioners of all candidates in any given election to determine if any such candidates are delinquent in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by any candidate, earnings taxes, or in the payment of City of St. Louis water and refuse bills. If the Board of Election Commissioners commences such an investigation and discovers that any candidate is delinquent in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by the candidate, earnings taxes, or in the payment of City of St. Louis water and refuse bills the Board of Election Commissioners shall notify the candidate in writing of the outstanding taxes or bills due and give the candidate seven (7) days following the candidate's receipt of said notice to remit payment in full of any outstanding taxes or water or refuse bills due which were not theretofore the documented subject of dispute between the respective department and the candidate, and provide the Board of Election Commissioners with proof thereof in the form of official receipts or statements of no taxes due from the Collector of Revenue evidencing payment of such taxes or bills. The notice shall be sent via U.S. Postal Service certified mail return receipt requested to the address provided by the candidate on the candidate's declaration of candidacy and shall be deemed received seventy-two (72) hours after mailing. If the candidate fails to remit payment in full for such amounts within said seven (7) day period the candidate shall be disqualified from participating in the current election and, if the current election is a primary election, barred from refiling as a candidate for the same office or any other elected office of the City of St. Louis in the subsequent general election even if the individual pays all outstanding taxes or bills that were the subject of the complaint. (1994 C., § 2.08.430; Ord. No. 70991, § 2, 4-26-2019; Ord. No. 68605, §§ 1—3, 3-16-2010.)

2.08.440 Disclosure of donors.

Any not for profit entity organized or operating under 501(c)4 or 501(c)6 of the Internal Revenue Code of the United States making aggregate expenditures or contributions in excess of $500.00 in support or opposition to a candidate for mayor, comptroller, president of the Board of Aldermen or a City of St. Louis ballot measure shall file a donor disclosure report. The donor disclosure report shall be filed with the Board of Election Commissioners within 48 hours of making such expenditures or contributions. The report shall detail the name, address, employer, or if self-employed, the occupation of each donor to the not for profit entity. The initial report shall list such donor information for the prior one-year period. After subsequent aggregate expenditures or contributions in excess of $500.00, an additional donor disclosure report is required within 48 hours providing donor information since the last report. Any not for profit entity failing to file a required donor disclosure report shall be liable for a civil penalty equal to the amount of its aggregate expenditures and contributions plus $500.00. Any candidate or ballot measure campaign receiving a contribution from a not for profit entity that has not filed a required disclosure report shall return such contribution. This section shall not apply to not for profit entities that file donor information reports under RSMo Ch. 130. (1994 C., § 2.08.440; Ord. No. 69350, § 1, 12-20-2012.)

2.08.450 Municipal elections.

Notwithstanding any other provision of law to the contrary, the elections for the offices of Mayor, Comptroller, President of the Board of Aldermen, and Alderman shall be conducted as non-partisan, top-two runoff elections. Elections for any municipal offices not provided for in the Charter or this Code as of the date of enactment of this section shall be conducted as described in Section 2.08.460.
(Amd. of 11-3-2020)

Editor's note:

Sections 2.08.450—2.08.490 were approved by voters at an election of November 3, 2020.

2.08.460 Conduct of municipal elections.

Notwithstanding any other provision of law to the contrary, in the primary election for the offices of Mayor, Comptroller, President of the Board of Aldermen, and Alderman, voters shall select as many candidates as they approve of for each office. The two candidates receiving the most votes for each office shall advance to the general election. The candidate for each office receiving the most votes in the general election shall be declared the winner.
(Amd. of 11-3-2020)

2.08.470 Ballot instructions for municipal elections

Notwithstanding any other provision of law to the contrary, for the primary election for the offices of Mayor, Comptroller, President of the Board of Aldermen, and Alderman, the instructions on the ballot shall state, "Vote for AS MANY names as you approve of," with "AS MANY" being written in uppercase.
(Amd. of 11-3-2020)

2.08.480 Vacancies

Notwithstanding any other provision of law to the contrary, the election to fill a vacancy in the offices of Mayor, Comptroller, President of the Board of Aldermen, or Alderman shall be conducted as a non-partisan, top-two runoff election.
(Amd. of 11-3-2020)

2.08.490 Effect on election ordinances

Notwithstanding any other provision of law to the contrary, the elections described in Section 2.08.450 shall be non-partisan elections. Candidates for office elected by the method described in Section 2.08.460 shall be required to declare their candidacy with the Board of Elections, however, they shall not declare a party affiliation to the Board of Elections.

To the extent that there is no conflict, generally-applicable election ordinances shall apply to the elections described in Section 2.08.450. However, no political party committee shall be allowed to formally nominate a candidate for non-partisan office, but nothing herein shall prohibit a party or committee from endorsing any candidate.
(Amd. of 11-3-2020)

Chapter 2.12

WARDS

Prior history: Ords. 53564, 54404, 58599, 58491, 58459, 57699, 56027; 1948 C. Ch. 20 §§ 4, 5; 1960 C. § 11.200

Sections:

2.12.010 Boundaries established.

2.12.010 Boundaries established.

This City is divided into fourteen (14) wards, the boundaries of which are set forth below and are established as follows:

WARD 14

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of E Warne Ave. and W Florissant Ave., and proceeding northerly along E Warne Ave. to Zealand St., and proceeding northerly along Zealand St. to Adelaide Ave., and proceeding easterly along Adelaide Ave. to the Mississippi River, and proceeding easterly along the Mississippi River to the St. Louis City county line, and proceeding southerly along the St. Louis City county line to Florida St., and proceeding westerly along Florida St. to Lewis St., and proceeding southerly along Lewis St. to Dickson St., and proceeding westerly along Dickson St. to N 1st St., and proceeding southerly along N 1st St. to O'Fallon St., and proceeding westerly along O'Fallon St. to N 2nd St., and proceeding northerly along N 2nd St. to Dickson St., and proceeding westerly along Dickson St. to N 3rd St., and proceeding southerly along N 3rd St. to Biddle St., and proceeding westerly along Biddle St. to I-44, and proceeding southerly along I-44 to Cole St., and proceeding westerly along Cole St. to N 9th St., and proceeding southerly along N 9th St. to Dr. Martin Luther King Dr., and proceeding westerly along Dr.

Martin Luther King Dr. to N 10th St., and proceeding southerly along N 10th St. to Lucas Ave., and proceeding easterly along Lucas Ave. to N 9th St., and proceeding southerly along N 9th St. to Pine St., and proceeding westerly along Pine St. to N 11th St., and proceeding southerly along N 11th St. to Market St., and proceeding westerly along Market St. to S 11th St., and proceeding southerly along S 11th St. to Clark Ave., and proceeding westerly along Clark Ave. to S Tucker Blvd., and proceeding southerly along S Tucker Blvd. to I-64, and proceeding westerly along I-64 to S 14th St., and proceeding northerly along S 14th St. to Market St., and proceeding westerly along Market St. to S 20th St., and proceeding southerly along S 20th St. to Clark Ave., and proceeding westerly along Clark Ave. to 21st St., and proceeding southerly along 21st St. 0.0154 miles, and proceeding easterly 0.0677 miles to railroad, and proceeding southerly along railroad to I-64, and proceeding westerly along I-64 to S Jefferson Ave., and proceeding northerly along S Jefferson Ave. to N Jefferson Ave., and proceeding northerly along N Jefferson Ave. to Stoddard St., and proceeding westerly along Stoddard St. to Glasgow Ave., and proceeding northerly along Glasgow Ave. to Palm St., and proceeding westerly along Palm St. to N Garrison Ave., and proceeding southerly along N Garrison Ave. to east/west alley immediately south of Palm Pl., and proceeding westerly along said alley to N Grand Blvd., and proceeding northerly along N Grand Blvd. to W Florissant Ave., and proceeding westerly along W Florissant Ave. to the point of beginning.

Population: 20,647

WARD 13

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of the St. Louis City county line and Page Blvd., and proceeding northerly along the St. Louis City county line to the Mississippi River, proceeding westerly along the Mississippi River to E. Carrie Ave., and proceeding westerly along E Carrie Ave. to Norfolk and Western Rlwy., and proceeding northerly along Norfolk and Western Rlwy. to Terminal Railway Association of St. Louis RR, and proceeding northerly along Terminal Railway Association of St. Louis RR to E Railroad Ave., and proceeding northerly along E Railroad Ave. to Antelope St., and proceeding easterly along Antelope St. to Terminal Railway Association of St. Louis RR, and proceeding easterly along Terminal Railway Association of St. Louis RR to Hall St., and proceeding northerly along Hall St. to Gimblin Rd., and proceeding westerly along Gimblin Rd. to Gimblin St., and proceeding westerly along Gimblin St. to Newby St., and proceeding northerly along Newby St. to Sells Ave., and proceeding westerly along Sells Ave. to Annetta Ave., and proceeding northerly along Annetta Ave. to McLaran Ave., and proceeding westerly along McLaran Ave. to Riverview Blvd., and proceeding southerly along Riverview Blvd. to Melrose Ave., and proceeding westerly along Melrose Ave. to Riverview Blvd., and proceeding southerly along Riverview Blvd. to W Florissant Ave., and proceeding southerly along W Florissant Ave. to Union Blvd., and proceeding southerly along Union Blvd. to Natural Bridge Ave., and proceeding westerly along Natural Bridge Ave. to Arlington Ave., and proceeding southerly along Arlington Ave. to Dr. Martin Luther King Dr., and proceeding easterly along Dr. Martin Luther King Dr. to Union Blvd. and proceeding southerly along Union Blvd. to Page Blvd., and proceeding westerly along Page Blvd. to the point of beginning.

Population: 20,584

WARD 12

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of Arlington Ave. and Dr. Martin Luther King Dr., and proceeding northerly along Arlington Ave. to Natural Bridge Ave., and proceeding easterly along Natural Bridge Ave. to Union Blvd., and proceeding northerly along Union Blvd. to W Florissant Ave., and proceeding northerly along W Florissant Ave. to Riverview Blvd., and proceeding northerly along Riverview Blvd. to McLaran Ave., and proceeding easterly along McLaran Ave. to Annetta Ave., and proceeding southerly along Annetta Ave. to Sells Ave., and proceeding easterly along Sells Ave. to Newby St., and proceeding southerly along Newby St. to Gimblin St., and proceeding easterly along Gimblin St. to Gimblin Rd., and proceeding easterly along Gimblin Rd. to Hall St., and proceeding southerly along Hall St. to Terminal Railway Association of St. Louis RR, and proceeding westerly along Terminal Railway Association of St. Louis RR to Antelope St., and proceeding westerly along Antelope St. to E Railroad Ave., and proceeding southerly along E Railroad Ave. to Terminal Railway Association of St. Louis RR, and proceeding southerly along Terminal Railway Association of

St. Louis RR to Norfolk and Western Rlwy., and proceeding southerly along Norfolk and Western Rlwy. to E Carrie Ave., and proceeding easterly along E Carrie Ave. to the Mississippi River, and proceeding easterly along the Mississippi River to the St. Louis City county line, and proceeding southerly along the St. Louis City county line to Adelaide Ave., and proceeding westerly along Adelaide Ave. to I-70, and proceeding westerly along I-70 to E Taylor Ave., and proceeding northerly along E Taylor Ave. to I-70, and proceeding westerly along I-70 to N Newstead Ave., and proceeding southerly along N Newstead Ave. to Dryden Ave., and proceeding westerly along Dryden Ave. to Bessie Ave., and proceeding westerly along Bessie Ave. to Marcus Ave., and proceeding southerly along Marcus Ave. to E Lee Ave., and proceeding westerly along E Lee Ave. to Marcus Ave., and proceeding southerly along Marcus Ave. to Natural Bridge Ave., and proceeding easterly along Natural Bridge Ave. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to Enright Ave., and proceeding westerly along Enright Ave. to Whittier St., and proceeding southerly along Whittier St. to Delmar Blvd., and proceeding westerly along Delmar Blvd. to N Taylor Ave., and proceeding northerly along N Taylor Ave. to Dr. Martin Luther King Dr., and proceeding westerly along Dr. Martin Luther King Dr. to the point of beginning.

Population: 21,153

WARD 11

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of S Vandeventer Ave. and Chouteau Ave., and proceeding easterly along S Vandeventer Ave. to N Vandeventer Ave., and proceeding northerly along N Vandeventer Ave. to Natural Bridge Ave., and proceeding westerly along Natural Bridge Ave. to Marcus Ave., and proceeding northerly along Marcus Ave. to E Lee Ave., and proceeding easterly along E Lee Ave. to Marcus Ave., and proceeding northerly along Marcus Ave. to Bessie Ave., and proceeding easterly along Bessie Ave. to Dryden Ave., and proceeding easterly along Dryden Ave. to N Newstead Ave., and proceeding northerly along N Newstead Ave. I-70, and proceeding easterly along I-70 to E Taylor Ave., and proceeding southerly along E Taylor Ave. to I-70, and proceeding easterly along I-70 to Adelaide Ave., and proceeding westerly along Adelaide Ave. to Zealand St., and proceeding southerly along Zealand St. to E Warne Ave., and proceeding southerly along E Warne Ave. to W Florissant Ave., and proceeding easterly along W Florissant Ave. to N Grand Blvd., and proceeding southerly along N Grand Blvd. to east/west alley immediately south of Palm Pl., and proceeding easterly along said alley to N Garrison Ave., and proceeding northerly along N Garrison Ave. to Palm St., and proceeding easterly along Palm St. to Glasgow Ave., and proceeding southerly along Glasgow Ave. to Stoddard St., and proceeding easterly along Stoddard St. to N Jefferson Ave., and proceeding southerly along N Jefferson Ave. to S Jefferson Ave., and proceeding southerly along S Jefferson Ave. to Chouteau Ave., and proceeding westerly along Chouteau Ave. to the point of beginning.

Population: 20,651

WARD 10

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of the St. Louis City county line and Clayton Rd., and proceeding northerly along the St. Louis City county line to Page Blvd., and proceeding easterly along Page Blvd. to Union Blvd., and proceeding northerly along Union Blvd. to Dr. Martin Luther King Dr., and proceeding easterly along Dr. Martin Luther King Dr. to N Taylor Ave., and proceeding southerly along N Taylor Ave. to Delmar Blvd., and proceeding westerly along Delmar Blvd. to Union Blvd., and proceeding southerly along Union Blvd. to Lindell Blvd., and proceeding easterly along Lindell Blvd. to N Kingshighway Blvd., and proceeding southerly along N Kingshighway Blvd. to S Kingshighway Blvd., and proceeding southerly along S Kingshighway Blvd. to Oakland Ave., and proceeding westerly along Oakland Ave. to Clayton Ave., and proceeding westerly along Clayton Ave. to Clayton Rd., and proceeding westerly along Clayton Rd. to the point of beginning.

Population: 20,922

WARD 9

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of Macklind Ave. and Manchester Ave., and proceeding northerly along Macklind Ave. to Oakland Ave., and proceeding easterly along Oakland Ave. to S Kingshighway Blvd., and proceeding northerly along S Kingshighway Blvd. to N Kingshighway Blvd., and proceeding northerly along N Kingshighway

Blvd. to Lindell Blvd., and proceeding westerly along Lindell Blvd. to Union Blvd., and proceeding northerly along Union Blvd. to Delmar Blvd., and proceeding easterly along Delmar Blvd. to Whittier St., and proceeding northerly along Whittier St. to Enright Ave., and proceeding easterly along Enright Ave. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to S Vandeventer Ave., and proceeding southerly along S Vandeventer Ave. to I-44, and proceeding westerly along I-44 to S Kingshighway Blvd., and proceeding northerly along S Kingshighway Blvd. to Manchester Ave., and proceeding westerly along Manchester Ave. to the point of beginning.

Population: 20,571

WARD 8

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of S Broadway and E Dover St., and proceeding northerly along S Broadway to Eichelberger St., and proceeding westerly along Eichelberger St. to Pennsylvania Ave., and proceeding northerly along Pennsylvania Ave. to Delor St., and proceeding westerly along Delor St. to I-55, and proceeding northerly along I-55 to S Broadway, and proceeding northerly along S Broadway to Osceola St., and proceeding easterly along Osceola St. 0.0203 miles to S Broadway, and proceeding northerly along S Broadway to S Jefferson Ave., and proceeding northerly along S Jefferson Ave. to Park Ave., and proceeding easterly along Park 0.0107 miles, and proceeding northwesterly along Park Ave. 0.00735 miles to S Jefferson Ave., and proceeding northerly along S Jefferson Ave. to I-64, and proceeding easterly along I-64 to 0.449 miles to railroad, and proceeding northerly along railroad 0.11 miles, and proceeding westerly to 21st St., and proceeding northerly along 21st St. to Clark, and proceeding easterly along Clark Ave. to S 20th St., and proceeding northerly along S 20th St. to Market St., and proceeding easterly along Market St. to S 14th St., and proceeding southerly along S 14th St. to I-64, and proceeding easterly along I-64 to S Tucker Blvd., and proceeding northerly along S Tucker Blvd. to Clark Ave., and proceeding easterly along Clark Ave. to S 11th St., and proceeding northerly along S 11th St. to Market St., and proceeding easterly along Market St. to N 11th St., and proceeding northerly along N 11th St. to Pine St., and proceeding easterly along Pine St. to N 9th St., and proceeding northerly along N 9th St. to Lucas Ave., and proceeding westerly along Lucas Ave. to N 10th St., and proceeding northerly along N 10th St. to Dr. Martin Luther King Dr., and proceeding easterly along Dr. Martin Luther King Dr. to N 9th St., and proceeding northerly along N 9th St. to Cole St., and proceeding easterly along Cole St. to I-44, and proceeding northerly along I-44 to Biddle St., and proceeding easterly along Biddle St. to N 3rd St., and proceeding northerly along N 3rd St. to Dickson St., and proceeding easterly along Dickson St. to N 2nd St., and proceeding southerly along N 2nd St. to O'Fallon St., and proceeding easterly along O'Fallon St. to N 1st St., and proceeding northerly along N 1st St. to Dickson St., and proceeding easterly along Dickson St. to Lewis St., and proceeding northerly along Lewis St. to Florida St., and proceeding easterly along Florida St. to the St. Louis City county line, and proceeding southerly along the St. Louis City county line to E Dover St., and proceeding westerly along E Dover St. to the point of beginning.

Population: 21,751

WARD 7

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of S Vandeventer Ave. and I-44, and proceeding northerly along S Vandeventer Ave. to Chouteau Ave., and proceeding easterly along Chouteau Ave. to S Jefferson Ave., and proceeding southerly along S Jefferson Ave. to Park Ave., and proceeding westerly along Park Ave. to S Jefferson Ave., and proceeding southerly along S Jefferson Ave. to Winnebago St., and proceeding westerly along Winnebago St. to S Grand Blvd., and proceeding northerly along S Grand Blvd. to Shenandoah Ave., and proceeding easterly along Shenandoah Ave. to Nebraska Ave., and proceeding northerly along Nebraska Ave. to I-44, and proceeding westerly along I-44 to the point of beginning.

Population: 21,361

WARD 6

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of S Kingshighway Blvd. and Chippewa St., and proceeding northerly along S Kingshighway Blvd. to Magnolia Ave., and proceeding easterly along Magnolia Ave. to Tower Grove Ave., and proceeding northerly along Tower Grove Ave. to I-44, and proceeding easterly along I-44 to Nebraska Ave.,

and proceeding southerly along Nebraska Ave. to Shenandoah Ave., and proceeding westerly along Shenandoah Ave. to S Grand Blvd., and proceeding southerly along S Grand Blvd. to Dunnica Ave., and proceeding westerly along Dunnica Ave. to Bamberger Ave., and proceeding southerly along Bamberger Ave. to Keokuk St., and proceeding westerly along Keokuk St. to Hydraulic Ave., and proceeding southerly along Hydraulic Ave. to Meramec St., and proceeding easterly along Meramec St. to Hydraulic Ave., and proceeding southerly along Hydraulic Ave. to Bingham Ave., and proceeding westerly along Bingham Ave. to Missouri Pacific RR, and proceeding northerly along Missouri Pacific RR to Chippewa St., and proceeding westerly along Chippewa St. to the point of beginning.

Population: 22,692

WARD 5

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of Hampton Ave. and east/west alley immediately south of Rosa, and proceeding northerly along Hampton Ave. to Columbia Ave., and proceeding easterly along Columbia Ave. to Hampton Ave., and proceeding northerly along Hampton Ave. to Manchester Ave., and proceeding easterly along Manchester Ave. to S Kingshighway Blvd., and proceeding southerly along S Kingshighway Blvd. to I-44, and proceeding easterly along I-44 to Tower Grove Ave., and proceeding southerly along Tower Grove Ave. to Magnolia Ave., and proceeding westerly along Magnolia Ave. to S Kingshighway Blvd., and proceeding southerly along S Kingshighway Blvd. to Rosa Ave., and proceeding westerly along Rosa Ave. to the east/west alley immediately south of Rosa, and proceeding westerly along said alley to the point of beginning.

Population: 22,521

WARD 4

Beginning at the point of intersection of the St. Louis City/County line and Watson Rd., and proceeding northerly along the St. Louis City/County line to Clayton Rd., and proceeding easterly along Clayton Rd. to Clayton Ave., and proceeding southerly along Clayton Ave. to Oakland Ave., and proceeding easterly along Oakland Ave. to Macklind Ave., and proceeding southerly along Macklind Ave. to Manchester Ave., and proceeding westerly along Manchester Ave. to Hampton Ave., and proceeding southerly along Hampton Ave. to Columbia Ave., and proceeding westerly along Columbia Ave. to Hampton Ave., and proceeding southerly along Hampton Ave. to Chippewa St., and proceeding westerly along Chippewa St. to the St. Louis City/County line, and proceeding southerly along the St. Louis City/County line to Chippewa St., and proceeding westerly along Chippewa St. to Watson Rd., and proceeding southerly along Watson Rd. to the point of beginning.

Population: 21,627

WARD 3

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of S Grand Blvd. and Holly Hills Ave., and proceeding northerly along S Grand Blvd. to Walsh St., and proceeding westerly along Walsh St. to S 38th St., and proceeding southerly along S 38th St. to Walsh St., and proceeding westerly along Walsh St. to Missouri Pacific RR, and proceeding northerly along Missouri Pacific RR, and proceeding easterly to Bingham Ave., and proceeding easterly along Bingham Ave. to Hydraulic Ave., and proceeding northerly along Hydraulic Ave. to Meramec St., and proceeding westerly along Meramec St. to Hydraulic Ave., and proceeding northerly along Hydraulic Ave. to Keokuk St., and proceeding easterly along Keokuk St. to Bamberger Ave., and proceeding northerly along Bamberger Ave. to Dunnica Ave., and proceeding easterly along Dunnica Ave. to S Grand Blvd., and proceeding northerly along S Grand Blvd. to Winnebago St., and proceeding easterly along Winnebago St. to S Jefferson Ave., and proceeding southerly along S Jefferson Ave. to S Broadway, and proceeding southerly along S Broadway to Osceola St., and proceeding westerly along Osceola St. to S Broadway, and proceeding southerly along S Broadway to I-55, and proceeding westerly along I-55 to Delor St., and proceeding easterly along Delor St. to Pennsylvania Ave., and proceeding southerly along Pennsylvania Ave. to Eichelberger St., and proceeding easterly along Eichelberger St. to S Broadway, and proceeding southerly along S Broadway to Bates St., and proceeding westerly along Bates St. to I-55, and proceeding westerly along I-55 to Holly Hills Ave., and proceeding westerly along Holly Hills Ave. to the point of beginning.

Population: 21,753

WARD 2

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of Watson Rd. and the St. Louis City county line, and proceeding easterly along Watson Rd. to Chippewa St., and proceeding easterly along Chippewa St. to Hampton Ave., and proceeding southerly along Hampton Ave. to east/west alley immediately south of Rosa, and proceeding easterly along said alley to Rosa Ave., and proceeding easterly along Rosa Ave. to S Kingshighway Blvd., and proceeding northerly along S Kingshighway Blvd. to Chippewa St., and proceeding easterly along Chippewa St. to Missouri Pacific RR, and proceeding southerly along Missouri Pacific RR to Gravois Ave., and proceeding southerly along Gravois Ave. to Milentz Ave., and proceeding southerly along Milentz Ave. to Printz Ave., and proceeding westerly along Printz Ave. to Holly Hills Ave., and proceeding southerly along Holly Hills Ave. to Holly Hills Blvd., and proceeding easterly along Holly Hills Blvd. to Morganford Rd., and proceeding southerly along Morganford Rd. to the St. Louis City county line, and proceeding westerly along the St. Louis City county line to the point of beginning.

Population: 22,653

WARD 1

All of that portion of St. Louis City County bounded and described as follows: Beginning at the point of intersection of Morganford Rd. and the St. Louis City County line, and proceeding northerly along Morganford Rd. to Holly Hills Blvd., and proceeding westerly along Holly Hills Blvd. to Holly Hills Ave., and proceeding westerly along Holly Hills Ave. to Printz Ave., and proceeding easterly along Printz Ave. to Milentz Ave., and proceeding northerly along Milentz Ave. to Gravois Ave., and proceeding easterly along Gravois Ave. to Missouri Pacific RR, and proceeding southerly along Missouri Pacific RR to Walsh St., and proceeding easterly along Walsh St. to S 38th St., and proceeding northerly along S 38th St. to Walsh St., and proceeding easterly along Walsh St. to S Grand Blvd., and proceeding southerly along S Grand Blvd. to Holly Hills Ave., and proceeding easterly along Holly Hills Ave. to I-55, and proceeding easterly along I-55 to Bates St., and proceeding easterly along Bates St. to S Broadway, and proceeding southerly along S Broadway to E Dover St., and proceeding easterly along E Dover St. to the St. Louis City County line, and proceeding southerly along the St. Louis City County line to the point of beginning.

Population: 22,692

(1994 C., § 2.12.010; Ord. No. 71443, §§ 1, 2, 12-27-2021; Ord. No. 68981, § 2, 7-26-2011)

Editor's Note:

Ord. No. 68981, adopted July 26, 2011, repealed § 2.12.010 and enacted a new section as set out herein. The former § 2.12.010 pertained to similar subject matter and derived from Ord. No. 65377, § 2, 2001. New ward boundaries will be determined after the 2020 census, at which time the total number of wards is scheduled to be reduced to 14 per amended to Charter.

Charter:

Art I § 3 Wards

Cases:

Use of registered voters as basis for apportionment of aldermanic wards was not constitutionally permissible. *Priesler v. Mayor of City of St. Louis,* 303 F. Supp. 1071 (1969).

Ward boundaries held valid. *Bosley v. Villa,* 999 F2d 1301 (1990).

Ward boundaries based on 1991 census held valid against attack under federal Voting Rights Act. *African American Voting Rights Legal Def. Fund v. Villa*, 54 F.3d 1345 (8th Cir. 1995).

Title 3

ADMINISTRATION

For heritage and urban design commission, see Ch. 24.08.

Charter:

Art. XXV § 1 Changes in administrative provisions.

Chapters:

3.02	General Provisions
3.04	Mayor
3.06	Board of Aldermen
3.08	City Courts
3.09	Sheriff
3.10	Law Department
3.12	Board of Police Commissioners
3.14	City Marshal
3.16	Legal Services
3.17	Circuit Attorney
3.18	Register
3.20	Recorder of Deeds
3.22	Coroner
3.24	Fire Department
3.26	Board of Public Service
3.28	President of Board of Public Service
3.29	Equipment Services Division to Department of President of Board of Public Service
3.30	Department of Public Utilities
3.32	Department of Streets
3.36	Department of Welfare
3.38	Department of Health and Hospitals
3.40	City Emergency Management Agency
3.42	Human Development Corporation
3.43	Information Technology Services Agency
3.44	Civil Rights Enforcement Agency
3.45	Special Events
3.46	Reserved
3.47	Community Development Administration
3.48	Planning and Urban Design Agency
3.50	Libraries—Deposit of City Reports
3.52	City Journal
3.54	City Vehicles
3.56	Public Buildings and Property
3.57	Arts and Humanities Commission
3.58	Reserved
3.59	Affordable Housing Commission
3.60	Charity Solicitations Commission
3.62	Convention Center and Auditorium Commission
3.64	Reserved
3.66	Reserved
3.67	Reserved
3.69	Criminal Justice Coordinating Council
3.70	Reserved
3.72	Campaign Contribution Limits
3.74	Planetarium Commission
3.76	Reserved
3.78	Agency on Training and Employment
3.80	Regional Criminal Justice Computerized Information Processing Service
3.81	Enhanced Enterprise Zone Board
3.82	Land Reutilization Authority
3.83	Tax Increment Financing Commission
3.84	Planned Industrial Expansion Authority
3.85	Land Clearance for Redevelopment Authority

3.86 **Neighborhood Rehabilitation**

3.87 **Neighborhood Improvement Districts**

3.88 **St. Louis Transition Center for the Homeless**

3.90 **First Source Jobs Policy**

3.91 **Professional Sports Facility**

3.92 **Memorandums of Understanding**

3.94 **Transfer of Agreements**

3.96 **Forest Park Advisory Board**

3.97 **Professional Service Contracts**

3.98 **Professional Service Agreements**

3.99 **Living Wage**

3.100 **Public Records**

3.105 **Reserved**

3.110 **Public Works Contracts**

3.115 **Transparency in Government**

3.120 **Clean Energy Development Board**

3.125 **Reserved**

3.130 **Office of Fiscal Empowerment**

3.135 **Poet Laureate and Poet Laureate Task Force**

3.140 **Division of Civilian Oversight**

3.142 **Disclosure of Potential Conflicts of Interest and Substantial Interests**

3.145 **Community Mediation**

3.150 **Process and Database for Registered Neighborhood Organizations**

3.151 **Notification to Registered Neighborhood Organizations**

3.155 **Youth Council**

3.160 **Policies and Procedures for the Consideration of Development Proposals**

3.165 **Municipal Identification Card Program (Gateway Card)**

Chapter 3.02

GENERAL PROVISIONS

Sections:

3.02.010 **Annual reports to be filed with Mayor.**

3.02.020 **Offices to be open five days.**

3.02.030 **Permit and license issuance—Summary of applications required.**

3.02.040 **Permit and license issuance—Exemption for license renewal.**

3.02.050 **Permit and license issuance—Distribution of application summaries.**

3.02.060 **Returned checks—Service charge.**

3.02.070 **Contracts subject to City earnings tax.**

3.02.080 **Rules Required for City Boards and Commissions.**

3.02.090 **Training Required for City Boards and Commissions.**

3.02.010 Annual reports to be filed with Mayor.

The annual report of each executive board and the head of each department or office required by Article VIII, Section 10 of the Charter, shall cover the period of the fiscal year and shall be filed with the Mayor not later than the first day of August in each year, and a copy thereof shall be filed with the Register on the same date. The annual reports of the head of each department, division office, branch and section of the Board of Public Service shall cover the period of the fiscal year and shall be filed each year with the Secretary of the Board of Public Service not later than forty-five days after the close of the fiscal year, and a copy thereof shall be filed with the Register on the same date. (1948 C., Ch. 2, § 3; 1960 C., § 26.010; 1994 C., § 3.02.010.)

Charter:

Art. VIII § 10 Reports by executive boards and department heads.

City Counselor Ops.: 8178

3.02.020 Offices to be open five days.

All City offices performing county functions except the Sheriff's Office shall be open to the general

public five days per week, excepting Saturdays, Sundays and legal holidays. The elected office holder may open his office on a sixth day or any portion thereof, when, in his judgment, the public convenience requires such opening. (1994 C., § 3.02.020; Ord. No. 56025, § 1, 1971.)

RSMo:

RSMo 82.815 (2016) Number of days City offices to be open.

3.02.030 Permit and license issuance—Summary of applications required.

It shall be unlawful for any City board, department, division or other agency authorized to issue permits, licenses or other written grants of authority, including, but not limited to, the Building Division, Board of Public Service, Charity Solicitation Commission, Excise Division, Health Department, License Collector and the Water Division, to act upon or issue any future permit, license or other grant of authority for the operation of any new establishment until a summary of all such applications has been delivered to the Clerk of the Board of Aldermen, and his receipt taken therefor, all within three (3) days after its presentation to the relevant agency or authority. (1994 C., § 3.02.030; Ord. No. 57544, § 2, 1978.)

3.02.040 Permit and license issuance—Exemption for license renewal.

The provisions of Sections 3.02.030 through 3.02.050 shall not apply to applications for renewal of an existing license nor shall it be required of the License Collector before the issuance of automobile City stickers. (1994 C., § 3.02.040; Ord. No. 56544, § 3, 1978.)

3.02.050 Permit and license issuance—Distribution of application summaries.

All divisions referred to in Section 3.02.030 shall furnish a summary of all applications applied for in sufficient numbers to provide a copy for each Alderman (not less than 30), to the Clerk of the Board of Aldermen for distribution. Summary shall be made and forwarded to the Clerk no later than three (3) days following initial applications. (1994 C., § 3.02.050; Ord. No. 57544, § 4, 1978.)

3.02.060 Returned checks—Service charge.

There is hereby established a service charge of twenty dollars for any check that is returned to the City of St. Louis, or any of its departments or boards, the Collector of Revenue, License Collector, Sheriff, Recorder of Deeds, Circuit Attorney, Treasurer, Public Administrator and Circuit Clerk's offices, because of insufficient funds, and it shall be a violation of this chapter for any person, firm, or corporation not to reimburse the payee for any checks returned and/or to pay said service charge. (1994 C., § 3.02.060; Ord. No. 62785, § 1, 1992.)

3.02.070 Contracts subject to City earnings tax.

After December 31, 2002, no contract for services subject to City earnings tax of the City of St. Louis shall be executed on behalf of the City unless there are attached thereto certifications from the Collector of Revenue dated not more than thirty (30) working days prior to the execution of the contract for services subject to City earnings tax stating that the contractor has paid all City earnings taxes due as of the date of the certification and has filed all returns of earnings tax and payroll expense tax required to be filed as of the date of the certification and from the License Collector that the contractor has a current business license. Any contract for services subject to City earnings tax executed without such certifications attached thereto shall be void and of no force or effect. (1994 C., § 3.02.070; Ord. No. 65708, §§ 1, 2, 2002; Ord. No. 63802, §§ 1, 2, 1996.)

3.02.080 Rules Required for City Boards and Commissions.

All boards and commissions established by the City of St. Louis (Exhibit A) shall develop and adopt rules. Rules may include, but are not limited to, policies around board member removal, attendance requirements, meeting times and locations, addition of items to meeting agendas, public notification and engagement, and responsibilities of board members or commissioners. Whenever a board or commission's rules are silent, the most recent edition of Robert's Rules of Order shall prevail. The custodian of record for each board or commission shall be responsible for posting its adopted rules on the City's website within one hundred eighty (180) days after the passage of this ordinance and filing a copy of said rules with the City Register. Whenever a new board or commission is established, it shall adopt rules and make them public on the City website within three (3) months of its inaugural meeting.

Exhibit A: List of Boards and Commissions

1. Affordable Housing Commission

2. Assessor's Office - Board of Equalization
3. Board of Election Commissioners
4. Board of Estimate & Apportionment
5. Board of Estimate & Apportionment - Budget Division - Capital Committee
6. Board of Examiners, Mechanical Contractors
7. Board of Examiners, Plumbers and Drainlayers
8. Board of Examiners, Sprinkler System Contractors
9. Board of Merchants and Manufacturers Tax Equalization
10. Board of Public Service - Community Jobs Board
11. Board of Public Service - Soldier's Memorial Commission
12. Board of Stationary Engineers
13. Board of Trustees of the Police Retirement System of the City of St. Louis
14. Board of Trustees of the St. Louis Firemen's Retirement System
15. City Health Insurance Committee
16. Civil Rights Enforcement Agency - Civil Rights Enforcement Commission
17. Committee of Electrical Examiners
18. Committee of Plumbing Review
19. Cultural Resources Office - Preservation Board
20. Deferred Compensation Committee
21. Economic Development Tax Board
22. Firefighter Retirement Plan Board of Trustees
23. Forest Park Advisory Board
24. Gateway Mall Advisory Board
25. Health - Board of Health and Hospitals
26. LGBTQIA Advisory Board
27. Long-Term Revenue Advisory Council
28. Mental Health Board
29. Municipal Officials and Officers Ethics Commission
30. Personnel - Civil Service Commission
31. Personnel - Employees Retirement System of the City of St. Louis
32. Planning & Urban Design Agency - Planning Commission
33. Public Safety - Building Division - Board of Adjustment
34. Public Safety - Building Division - Board of Building Appeals
35. Public Safety - Building Division - Building Energy Improvement Board
36. Public Safety - Building Division - Demolition Contractors' Certification Board
37. Public Safety - Civil Oversight Division - Civilian Oversight Board
38. Public Safety - Civil Oversight Division - Detention Facilities Oversight Board
39. Senior Citizens' Service Fund Board
40. SLATE - Workforce Development Board
41. St. Louis Charter Commission
42. St. Louis City Reparations Commission
43. St. Louis Lambert International Airport - Airport Commission
44. Tax Appeals Board
45. Youth Council

(Ord. No. 71994, § 1, 4-14-2025.)

3.02.090 Training Required for City Boards and Commissions.

All members of boards and commissions shall be offered training to assist with compliance with the Sunshine Law on an annual basis by the City Counselor's Office. All leadership of boards and commissions shall be offered training on Robert's Rules on an annual basis by the City Counselor's Office.

(Ord. No. 71994, § 1, 4-14-2025.)

Chapter 3.04

MAYOR

Appointments to be made to:

Advisory council on the disabled, see § 3.36.745

Agency on training and employment director, see § 3.78.022

Arts and humanities commission, see § 3.57.010

Arts and humanities commission executive director, see § 3.57.030

Athletic commission, see § 3.58.020

Board of children's services, see § 3.36.100

Charity solicitations commission, see § 3.60.010

Citizens consumer advisory committee, see § 3.36.685

Civil rights director, see § 3.44.070

Civil rights enforcement agency, see § 3.44.030

Commission on crime and law enforcement, see § 3.66.040

Community development agency director, see § 3.48.020

Community development commission, see § 3.48.100

Convention and exhibition center commission, see § 3.62.020

Disaster operations director, see § 3.40.030

Economic advisory board, see § 3.48.050

Model city agency

director, see § 3.46.030

executive board, see §§ 3.46.050, 3.46.060

Mullanphy board, see § 3.36.400

Municipal auditorium commission, see § 3.56.150

Municipal auditorium manager, see § 3.56.160

Planetarium commission, see § 3.74.010

Planned industrial expansion authority, see § 3.84.020

Public defender legal aid advisory board, see § 3.16.050

REJIS commission, see § 3.80.040

Soldiers' memorial building commission, see § 3.56.290

Youth commission, see § 3.76.010

Youth services board, see § 3.36.590

Assigning offices in city hall and municipal courts building, see § 3.56.040

Call meetings of:

Advisory council on the disabled, see § 3.36.750

Convention and exhibition center commission, see § 3.62.030

Municipal auditorium commission, see § 3.56.160

Soldiers' memorial building commission, see § 3.56.300

Call special election for vacancy on board of aldermen, see § 3.06.080

Call special sessions of board of aldermen, see § 3.06.030

Emergency powers, see §§ 3.40.080, 3.40.090

Mayor's contingent fund, § 5.42.010

Member of:

Convention and exhibition center commission, see § 3.62.020

Convention and tourism bureau, see § 3.64.010

Municipal auditorium commission, see § 3.56.150

Municipal bridge commission, see § 3.70.010

Soldiers' memorial building commission, see § 3.56.290

Office in city hall, see § 3.56.030

Reports to be filed with, see § 3.02.010

Submitting or execution of documents to Office of Economic Opportunity, see § 3.42.020

Charter:

Art. VII Mayor

Art. II § 2 Election of mayor

Art. IV § 17 Approval or disapproval of ordinances by mayor

Art. VIII § 6 Filling of vacancies by appointment by mayor

Art. VIII § 11 Duty of mayor to determine questions as to division of officers' powers

Art. XXX § 10 Certain records to be available for inspection by mayor

Cases:

Charter provisions empowering the mayor to remove officers were not unconstitutional. *State v. Wells,* 109 S.W. 758 (1908).

Mayor could not be required to appoint a firemen's arbitration board and statutes requiring him to do so were void. *State v. Cervantes,* 423 S.W. 2d 791 (1968).

McQuillin:

12.41 Mayor or chief executive

Sections:

3.04.010	**Installation.**
3.04.020	**Authority to remit fines, grant stay of execution.**
3.04.030	**Authority to summons and examine witnesses, issue warrants.**
3.04.040	**Powers in case of riot.**
3.04.050	**Duty when served with process.**
3.04.060	**Appointments—Ward representation.**
3.04.070	**Appointments—Vacancies to conform.**
3.04.080	**Appointments—Purpose of Sections 3.04.060 and 3.04.070.**

3.04.010 Installation.

On the third Tuesday in April after a Mayoralty election, or on some other date designated by the Board of Aldermen, at twelve o'clock noon, in the chamber of the Board of Aldermen at the City Hall, in the presence of the Board of Aldermen, the Mayor-elect shall be installed Mayor of the City. (1948 C., Ch. 2, § 6; 1960 C., § 10.010; 1994 C., § 3.04.010.)

City Counselor Ops.: 8178, 9837

3.04.020 Authority to remit fines, grant stay of execution.

In exercising the power to remit fines, costs, forfeitures and penalties imposed for violation of any ordinance or Charter provision, the Mayor is authorized to remit the same conditionally, when in his judgment such action shall be deemed expedient. Authority is

also conferred on the Mayor to control all executions issued by the City courts and recall the same and grant a stay of execution in any case on such terms and conditions as the public welfare shall demand. (1948 C., Ch. 2, § 7; 1960 C., § 10.020; 1994 C., § 3.04.020.)

City Counselor Ops.: 8178

3.04.030 Authority to summons and examine witnesses, issue warrants.

The Mayor, when he has good cause to believe that an offense has been or is about to be committed against law or ordinance, may summon and examine witnesses in relation thereto, and upon proper affidavits may issue a warrant for the apprehension of any offender against law or ordinance, which warrant shall be returnable before one of the City courts, and shall be tried as other cases in such courts. (1948 C., Ch. 2, § 8; 1960 C., § 10.030; 1994 C., § 3.04.030.)

City Counselor Ops.: 8178

3.04.040 Powers in case of riot.

The Mayor shall have power to call on his assistance the City police, the military of the City and citizens to assist him in preventing or quelling any riot, rout, unlawful assembly or breach of the peace, and all persons so called out by him shall be subject to his orders, while on the duty to which they are called. (1948 C., Ch. 2, § 9; 1960 C., § 10.040; 1994 C., § 3.04.040.) See Ch. 3.40

City Counselor Ops.: 8178

3.04.050 Duty when served with process.

Whenever any process or notice shall be served on the Mayor in any legal or other proceeding against the City, or in which the City is a party, he shall immediately deliver the process or notice, or a sufficient notice thereof, to the City Counselor, in order that the process or notice may be attended to. (1948 C., Ch. 2, § 10; 1960 C., § 10.050; 1994 C., § 3.04.050.)

City Counselor Ops.: 8178

3.04.060 Appointments—Ward representation.

All appointments to be made by the Mayor, after April 25, 1971, to any board, commission, council, agency or other public, or quasi-public body having three or more appointed members, shall be made so as to provide for a total representation of the residents of this City by wards, except where otherwise provided by law. (1994 C., § 3.04.060; Ord. No. 55771, § 1, 1971.)

3.04.070 Appointments—Vacancies to conform.

All appointments to fill vacancies as they occur in the membership of the bodies set forth in Section 3.04.060 shall be made in such a manner as to bring the membership of such bodies into conformance with the provisions of Section 3.04.060 when the ward residency of the remaining membership is taken into consideration. (1994 C., § 3.04.070; Ord. No. 55771, § 2, 1971.)

3.04.080 Appointments—Purpose of Sections 3.04.060 and 3.04.070.

The provisions of Sections 3.04.060 and 3.04.070, when the powers, duties and qualifications of the members of such body as provided by law have been considered, shall be construed in such a manner as to implement the intent of Sections 3.04.060 through 3.04.080; that the City as a whole have equal representation in the management of the affairs of this City. (1994 C., § 3.04.080; Ord. No. 55771, § 3, 1971.)

Chapter 3.06

BOARD OF ALDERMEN

Chambers in city hall, see § 3.56.030

President

Ex officio member of athletic commission, see § 3.58.010

To serve on:

Convention and exhibition center commission see § 3.62.020

Convention and tourism bureau, see § 3.64.010

Municipal auditorium commission, see § 3.56.150

Municipal bridge commission, see § 3.70.010

Soldiers' memorial building commission, see § 3.56.290

Salaries of employees, see Ch. 4.22

To serve on:

Agency on training and employment, see § 3.78.030

Athletic commission, see § 3.58.010

Commission on crime and law enforcement, see § 3.66.020

Community development commission, see § 3.48.100

Convention and exhibition center commission, see § 3.62.020

Executive board of model city agency, see § 3.46.050

Municipal auditorium commission, see § 3.56.150

Soldiers' memorial building commission, see § 3.56.290

Youth commission, see § 3.76.010

Charter:

Art. IV Board of Aldermen

Cases:

St. Louis Charter, Art. 4 §§ 1 and 23, vesting legislative power in board of aldermen does not deny or limit power of voters under Art. 5 § 1 of the charter. *State v. Niller,* 185 S.W. 504 (1926).

Compensation for city employees may not be fixed by the board of aldermen without the recommendation of the civil service commission. *Kirby v. Nolte,* 173 S.W. 2d 391 (1943).

Sections:

3.06.010 **Reserved.**

3.06.020 **Annual session.**

3.06.030 **Special sessions.**

3.06.040 **Resignations.**

3.06.050 **Vacancies—Filling by general election.**

3.06.090 **Compensation.**

3.06.100 **Officers.**

3.06.110 **Rules and regulations—Prescribing duties.**

3.06.120 **Removal of salaried officers.**

3.06.130 **Subpoenas—Authority of committees—Service.**

3.06.140 **Subpoenas—Authority of committees—Failure to appear—Issuance of writ of attachment—Fine.**

3.06.150 **Subpoenas—Authority of committees—Contempt—Warrant—Penalty.**

3.06.160 **Subpoenas—Authority of Board.**

3.06.180 **Clerk of the Board of Aldermen duties.**

3.06.190 **Assistant Clerk.**

3.06.220 **Secretary of the President of the Board—Appointment.**

3.06.230 **Secretary of the President of the Board—Duties.**

3.06.240 **Executive Secretary—Position created.**

3.06.245 **Executive Secretary—Duties.**

3.06.250 **Sergeant-at-arms.**

3.06.260 **Office of Legislative Research—Director.**

3.06.270 **Office of Legislative Research—Appointment of secretary.**

3.06.280 **Counsel to the Board—Qualification.**

3.06.290 **Counsel to the Board—Duties.**

3.06.300 **Contingency fund—Control—Review.**

3.06.310 **Contingency fund—Use.**

3.06.320 **Votes of the Board of Aldermen to be published in digital archive.**

3.06.010 Reserved.

Editor's Note:

Ord. No. 71653, § 1, approved March 1, 2023, amended the Code by repealing former § 3.06.010 in its entirety. Former § 3.06.010 pertained to elections of members of the Board of Aldermen, and derived from the 1948 Code, Ch. 2, § 12; the 1960 Code, § 11.010; and the 1994 Code, § 3.06.010.

3.06.020 Annual session.

One session of the Board of Aldermen shall be held annually, beginning on the third Tuesday of April, at the hour of eleven a.m. (1948 C., Ch. 2, § 13; 1960 C., § 11.020; 1994 C., § 3.06.020.)

City Counselor Ops.: 8178, 8857, 10291

3.06.030 Special sessions.

The Mayor may, by proclamation, call special sessions of the Board of Aldermen, giving three days' notice thereof, and shall specifically state by a message in writing to the Board of Aldermen when assembled, by such proclamation, the object for which the special session has been called, and the action of the Board of Aldermen, during the special session shall be confined to such object. The notice shall be given in a newspaper of general circulation published in the City. Upon the issuance of the proclamation the Clerk of the Board of Aldermen shall send written notice thereof to the members of the Board. (1948 C., Ch. 2, § 14; 1960 C., § 11.030; 1994 C., § 3.06.030.)

City Counselor Ops.: 8178, 8857, 9857, 10291

3.06.040 Resignations.

Resignation by a member of the Board of Aldermen shall be addressed to the presiding officer of the Board. (1948 C., Ch. 2, § 15; 1960 C., § 11.040; 1994 C., § 3.06.040.)

City Counselor Ops.: 8178, 8857, 10291

3.06.050 Vacancies—Filling by general election.

A. Presidency. Any vacancy occurring in the Board of Aldermen in the office of the President thereof,

otherwise than by the expiration of the regular term for which elected, shall be filled for the remainder of the unexpired term if any, at the next general City or state election held not less than sixty days after the vacancy occurs. The election shall be by general ticket from the City at large.

Whenever a vacancy occurs in the office of President of the Board of Aldermen and the Vice-President thereof is required to act and preside and perform the functions of the President, the Acting President shall not thereby lose or vacate his office as Alderman of the ward from which he was elected but shall continue in the dual capacity as Ward Alderman and also as acting Board President receiving the single compensation provided for the presidency. He shall be entitled to but one vote on any matter and shall hold as Acting President until the election of a President as provided when the Acting President shall resume his Ward Alderman authority until the expiration of his term unless the Ward Alderman be earlier terminated as provided.

Cases:

Vice president of board of aldermen who filled temporary vacancy of office of the president was entitled to salary of office of president. *State v. Nolte,* 180 S.W. 2d 740 (1944).

Where president of board of aldermen vacated his office temporarily while serving as mayor, charter provision requiring election to fill vacancy on the board was not applicable. *State v. Barrett,* 180 S.W. 2d 730 (1944).

Editor's Note:

Article IV, section 5 of the Charter was amended in 1974 and changed the time requiring election to fill vacancies in the board of aldermen from 60 days to 180 days before a next city general election. The Charter amendment supersedes this code section. (1948 C., Ch. 2, § 16; 1960 C., § 11.050; 1994 C., § 3.06.050; Amended during 6/02 supplement; Ord. No. 55211, § 1, 1969; Ord. No. 53994, § 2, 1966.)

City Counselor Ops.: 8178, 8857, 10291

3.06.090 Compensation.

When hereafter qualified, each member of the Board of Aldermen, except the President, shall receive annually for his or her services during his or her term of office the sum of seventy-two thousand dollars ($72,000.00), and may, upon authorization or approval by the Board of Aldermen, be paid his or her reasonable expense incurred in such service. Whenever a member of said Board, other than the President, is absent from two (2) meetings, that member shall forfeit fifty dollars ($50.00) of his or her salary, unless that member's absence is excused on motion stating the cause thereof and adopted by the majority of the members present, provided that forfeitures of any one (1) member shall not exceed fifteen hundred dollars ($1,500.00) in any one (1) year.
(1948 C., Ch. 2, § 20; 1960 C., § 11.090; 1994 C., § 3.06.090; Ord. No. 71615, § 2, 1-27-2023; Ord. No. 60347, § 2, 1987; Ord. No. 57509, § 1, 1978; Ord. No. 55267, § 1; 1969; Ord. No. 49825, § 1, 1960; Ord. No. 45564, § 1, 1951.)

Editor's Note:

The singular possessive pronoun "his" or "her" has been substituted for "their" as used in Ordinance 60347.

City Counselor Ops.: 8178, 8857, 9863, 10291

3.06.100 Officers.

The officers of the Board of Aldermen shall be a President who shall be elected by the qualified voters of the City on the first Tuesday of April every four years after the year 1915; a nonsalaried Vice-President; a clerk; an assistant clerk; an administrative assistant; a sergeant-at-arms; three secretaries; a receptionist/typist; a custodian and a counsel to the Board of Aldermen, each of whom, except the President, shall be appointed by the Board of Aldermen. (1948 C., Ch. 2, § 17; 1960 C., § 11.060; 1994 C., § 3.06.100; Ord. No. 59577, § 2(part), 1985; Ord. No. 59513, § 2(part), 1985; Ord. No. 58707, § 3(part), 1982; Ord. No. 58208, § 2(part), 1981; Ord. No. 57028, § 3, 1975.)

City Counselor Ops.: 8178, 8856, 10253, 10291

3.06.110 Rules and regulations—Prescribing duties.

The Board of Aldermen may, subject to the provisions of the Charter, determine the rules of its own proceedings, and may adopt such rules and regulations for its own organization and the appointment of all standing committees, as is shall deem expedient, and may prescribe the duties of all its officers and committees, respectively, not inconsistent herewith or with the Charter. No committee or member thereof shall have the right to assume or perform any executive duties, either in the execution of ordinances, in the settlement of claims or in any other manner. (1948 C., Ch. 2, § 22; 1960 C., § 11.100; 1994 C., § 3.06.110.)

City Counselor Ops.: 8178, 8857, 10095, 10291

3.06.120 Removal of salaried officers.

The Board of Aldermen may, by a vote of a majority of its members, remove any of its salaried officers and employees except the President, his Secretary and

the Administrative Assistant and Administrative Aide appointed by him to serve at his pleasure. (1948 C., Ch. 2, § 23; 1960 C., § 11.110; 1994 C., § 3.06.120; Ord. No. 59577, § 2(part), 1985; Ord. No. 59513, § 2(part), 1985; Ord. No. 58707, § 3(part), 1982.)

City Counselor Ops.: 8178, 8857, 10291

3.06.130 Subpoenas—Authority of committees—Service.

Whenever the Board shall, by resolution, authorize any of its committees to make investigation of any question or matter on which the Board may lawfully take actions, and shall empower the committee to send for persons and papers, the committee shall have authority to issue writs of subpoena and subpoena duces tecum. Such writs shall be signed by the presiding officer, or, in case of his absence or inability to act, by the acting presiding officer of the Board of Aldermen, and shall be attested by the Clerk of the Board. Every such writ shall be served and the return thereof made by the Sergeant-at-arms or the City Marshal to the chairman of the committee in like manner and with like effect as such writs issued from the Circuit Court are served and returned by the Sheriff. (1948 C., Ch. 2, § 24; 1960 C., § 11.120; 1994 C., § 3.06.130.)

City Counselor Ops.: 8768, 10913

Cases:

of aldermen has power to subpoena witnesses and to fix license taxes for gas companies. *Ex parte Halman,* 197 Mo. App. 70, 191 S.W. 1112 (1917).

3.06.140 Subpoenas—Authority of committees—Failure to appear—Issuance of writ of attachment—Fine.

In case any person named in any writ, under the provisions of Section 3.06.130, and who was personally served therewith, fails to appear before the committee at the time and place named in the writ, the committee shall have authority to issue a writ of attachment against the body of such person, to be signed as writs of subpoena are required to be signed and to be executed and returned to the chairman of the committee by the Sergeant-at-arms or the City Marshal, in like manner and with like effect as such writs of attachment issued by the Circuit Court are executed and returned by the Sheriff. Any person refusing to be arrested or resisting the Sergeant-at-arms or the City Marshal in the case provided for by this section shall be fined by the Board not less than twenty-five dollars nor more than one hundred dollars. (1948 C., Ch. 2, § 25; 1960 C., § 11.130; 1994 C., § 3.06.140.)

3.06.150 Subpoenas—Authority of committees—Contempt—Warrant—Penalty.

In case any person appearing before a committee in obedience to a writ of subpoena or of subpoena duces tecum or of attachment, refuses or fails to answer any question propounded to him by the committee, or fails to produce and submit to the examination of the committee any book, record or paper which he is required to produce by a subpoena duces tecum, or is in the presence of the committee, guilty of contemptuous or disorderly behavior, the committee shall immediately report the facts to the Board of Aldermen. Upon receiving the report the presiding officer, if so directed by the Board, shall issue a warrant signed by himself and directed to the Sergeant-at-arms or City Marshal commanding him to arrest such witness and have his body before the Board at its first meeting held thereafter to answer for contempt.

The Sergeant-at-arms or the City Marshal shall execute the warrant. On hearing of the matter, the Board, if it shall adjudge the witness to be in contempt of its authority, may punish him by a fine of not more than three hundred dollars or by imprisonment in the City Jail for not more than ten days or by both such fine and imprisonment. Any person fined under the provisions of this chapter shall, on default of payment thereof, be committed to the City Jail for the term of ten days. (1948 C., Ch. 2, § 26; 1960 C., § 11.140; 1994 C., § 3.06.150.)

3.06.160 Subpoenas—Authority of Board.

In case the Board of Aldermen shall, without the agency of a committee, conduct an investigation or desire to take evidence on any question or matter in which it may lawfully take action, it shall have authority to issue writs of subpoena, of subpoena duces tecum, and of attachment and warrants of commitment as provided by this chapter in cases of investigation before committees. Every writ or warrant shall be signed by the presiding officer or acting presiding officer and attested by the Clerk of the Board and be returnable to the presiding officer or acting presiding officer. All penalties provided in this chapter shall apply and obtain in cases of investigation made under the provisions of this section. (1948 C., Ch. 2, § 27; 1960 C., § 11.150; 1994 C., § 3.06.160.)

3.06.180 Clerk of the Board of Aldermen duties.

It shall be the duty of the Clerk of the Board of Aldermen to:

A. Keep a correct, full and explicit record of the proceedings of the Board of Aldermen;

B. Prepare and furnish to the newspaper doing the City printing as soon as may be after each meeting of the Board of Aldermen, an abstract of its proceedings, revised by the presiding officer, for publication;

C. File and preserve all papers and documents belonging to the Board of Aldermen, and upon them shall be endorsed a succinct history of all proceedings thereon;

D. Prepare copies of all resolutions and transmit them to the persons therein designated;

E. Keep in tabular form a synopsis of the proceedings of each meeting, showing the terms, number of each petition, resolution and bill presented, and by whom introduced, the substance of each petition and resolution and the title of each bill; the date when the same was introduced, and of the second and third readings, passage or rejection, enrollment, approval or veto; of the registered number of bills; also of the reference of all documents, to whom referred and when reported, together with such other of the proceedings, if any, of which it may be deemed necessary to preserve a brief history and to furnish an index thereto; all of which shall be, at the expiration of each term, printed for the use of the members of the Board of Aldermen and City officers;

F. Make requisitions, as described by ordinance for requisitions for such articles as are required in the department under his charge, shall make out the payrolls of members and officers of the Board of Aldermen and the employees under the Board, and shall certify in proper form all vouchers drawn on the respective funds;

G. Perform other duties appertaining to his office as may be required of him or as may be necessary to systematize the business and promote the efficiency thereof. (1948 C., Ch. 2, § 28, 31; 1960 C., §§ 11.160, 11.190; 1994 C., § 3.06.180.)

For duty of clerk to prepare copies of ordinances for publication in City Journal, see Section 3.52.110.

City Counselor Ops.: 8178, 8857, 9230, 10291

3.06.190 Assistant Clerk.

The Assistant Clerk shall perform such duties as he shall be directed to perform by the Clerk of the Board of Aldermen and shall act, in case of the absence, disability or failure of the Clerk to act. (1948 C., Ch. 2, § 29; 1960 C., § 11.170; 1994 C., § 3.06.190.)

City Counselor Ops.: 8178, 8857, 10291

3.06.220 Secretary of the President of the Board—Appointment.

The President of the Board of Aldermen is authorized to appoint a Secretary to serve at his pleasure. (1994 C., § 3.06.220; Ord. No. 55651, § 1, 1970.)

3.06.230 Secretary of the President of the Board—Duties.

The Secretary of the President of the Board of Aldermen shall perform secretarial duties connected with the office of President as may be directed by him, shall be entitled to all privileges awarded other employees of the Board of Aldermen, and shall assist, if requested by other members of the Board of Aldermen and upon direction of the President, with other office work performed in the aldermanic chambers. (1994 C., § 3.06.230; Ord. No. 55651, § 2, 1970.)

3.06.240 Executive Secretary—Position created.

There is hereby created the position of Executive Secretary to the Board of Aldermen and stating duties therefor as set out in Section 3.06.245. (1994 C., § 3.06.240; Ord. No. 60237, § 1, 1987.)

3.06.245 Executive Secretary—Duties.

The Executive Secretary to the Board of Aldermen shall primarily be assigned to serve as Confidential Secretary to the Vice-President of the Board of Aldermen, Majority Floor Leader, Minority Floor Leader, Assistant Majority Floor Leader, the Clerk of the Board of Aldermen and shall perform such other and additional duties under the direction of the Clerk as deemed necessary and appropriate. (1994 C., § 3.06.245; Ord. No. 68057, § 2, 7-11-2008; Ord. No. 60237, § 2, 1987.)

3.06.250 Sergeant-at-arms.

It shall be the duty of the Sergeant-at-arms to attend all meetings of the Board of Aldermen, to take care of the chamber and perform other duties as the Board of Aldermen shall require by rule or otherwise. (1948 C., Ch. 2, § 30; 1960 C., § 11.180; 1994 C., § 3.06.250.)

City Counselor Ops.: 8178, 8857, 10291

3.06.260 Office of Legislative Research—Director.

There shall be an Office of Legislative Research for the Board of Aldermen with a director to serve at the pleasure of said Board. (1994 C., § 3.06.260; Ord. No. 57660, § 1, 1978.)

3.06.270 Office of Legislative Research—Appointment of secretary.

The Director of the Office of Legislative Research shall appoint a secretary with the approval of the Board, to serve at the pleasure of the director. (1994 C., § 3.06.270; Ord. No. 57660, § 2, 1978.)

3.06.280 Counsel to the Board—Qualification.

There is hereby established, within the Table of Organization of the Board of Aldermen, the Office of Counsel to the Board of Aldermen, which shall be engaged by an attorney, licensed to practice before the highest court in this state, and shall have graduated from an accredited law school located within the United States of America. (1994 C., § 3.06.280; Ord. No. 59577, § 3, 1985; Ord. No. 59513, § 3, 1985.)

3.06.290 Counsel to the Board—Duties.

The Counsel to the Board of Aldermen shall handle the legal matters of the Board, such special projects as requested, which duties shall include are limited to representing the Board and its members in litigation and such other special duties and assignments as shall be authorized. The Personnel Committee of the Board shall review the areas of endeavor requested of its Counsel. (1994 C., § 3.06.290; Ord. No. 59577, § 4, 1985; Ord. No. 59513, § 4, 1985.)

3.06.300 Contingency fund—Control—Review.

There is hereby authorized a legal contingency fund in the sum of twenty-five thousand dollars ($25,000.00), which said fund is assigned to and will be under the control of the Counsel for the Board of Aldermen. The Personnel Committee of the Board of Aldermen having supervision and responsibility for discharge of aldermanic staff duties shall establish a review and monitoring procedure concerning the use and expenditures of any funds drawn against the Contingency Fund by the Counsel for the Board of Aldermen. (1994 C., § 3.06.300; Ord. No. 59577, § 5, 1985; Ord. No. 59513, § 5, 1985.)

3.06.310 Contingency fund—Use.

The contingency fund hereby established shall be used to sustain the cost of litigations authorized to be filed on behalf of the Board of Aldermen and to sustain expenses directly necessary and incidental to the duties of the Counsel for the Board of Aldermen. (1994 C., § 3.06.310; Ord. No. 59577, § 6, 1985; Ord. No. 59513, § 6, 1985.)

3.06.320 Votes of the Board of Aldermen to be published in digital archive.

The Clerk of the Board of Aldermen shall make a record of the vote of each member of the Board of Aldermen on all votes taken to pass board bills and non-courtesy resolutions out of committee, to perfect and to finally pass board bills, and to adopt non-courtesy resolutions. Alderpersons' votes shall be recorded as "Aye," "No," "Present or "Abstain. If an Alderperson is not present at the meeting this vote shall be recorded as "Absent." If an Alderperson was present at the meeting but not in the meeting room at the time of the vote and therefore did not cast a vote of any kind, this vote shall be recorded as "Did not Vote."

The Clerk of the Board of Aldermen shall publish the record of each vote on the official website of the City of St. Louis within two days following the date of the committee or Board of Aldermen meeting where the minutes of the meetings at which the votes were taken are approved. The records of votes published on the official website of the City of St. Louis shall be searchable by board bill number and resolution number, and chronologically by meeting date, and by Alderperson.

The records of votes shall contain the following information: the number of the bill or resolution voted upon; the vote recorded by each Alderperson and the President of the Board of Aldermen, by name, on each bill or resolution or the Alderperson's absence; whether the vote was taken by voice vote or roll-call vote; a hyperlink to the final and complete text of each bill; and the date the vote was taken. Votes taken on bills listed collectively on the Third Reading Consent Calendar on the meeting agenda of the Board of Aldermen shall be noted as such. The record of the proceedings of the Board of Aldermen published in the City Journal shall not satisfy the above requirement for a digital archive.

(1994 C., § 3.06.320; Ord. No. 71937, § 1, 12-10-2024; Ord. No. 70259, § 2, 3-22-2016.)

Chapter 3.08

CITY COURTS

Charter:

Art. XII City courts

McQuillin:

27.01 et seq. Courts (municipal)

Sections:

3.08.010 **Division of case load.**

3.08.020 **Acting judges.**

3.08.030 **Place of holding court.**

3.08.040 **Jurisdiction—Proceedings are civil actions.**

3.08.050 **Sessions and holidays.**

3.08.060 **Guilty pleas to be heard first.**

3.08.070 **Judges—Appointment.**

3.08.080 **Judges—Qualifications.**

3.08.090 **Judges—Powers and jurisdiction.**

3.08.095 **Warrants issued by municipal judges.**

3.08.100 **Rules of practice and procedure—Judges to establish.**

3.08.110 **Rules of practice and procedure—Publication—Filing.**

3.08.120 **Rules of practice and procedure—Amendment by ordinance.**

3.08.130 **Prosecution on complaint without filing an information.**

3.08.140 **Continuances.**

3.08.150 **Analysis of cases—Report to Mayor.**

3.08.160 **Clerk of the City Courts—Appointment—Term—Oath—Bond.**

3.08.170 **Clerk of the City Courts—Deputies.**

3.08.180 **Clerk of the City Courts—Duties.**

3.08.185 **Records open to inspection—Destruction of records.**

3.08.190 **Jury trial—Request—Selection—Verdict.**

3.08.200 **Jury trial—Deposit.**

3.08.210 **Swearing of jurors.**

3.08.220 **Penalty when guilty.**

3.08.230 **Jurors fee.**

3.08.240 **Amount of costs.**

3.08.250 **Deposit to cover cost upon change of venue.**

3.08.260 **Officers to attend as witnesses.**

3.08.270 **Witness fee payment—Certificate of amount.**

3.08.280 **Processes and notices on City to be served on City Counselor.**

3.08.290 **Affidavit upon part of City to be made by City Counselor.**

3.08.300 **Collateral security until appeal is perfected.**

3.08.310 **When complainant or informant required to deposit costs.**

3.08.320 **Accounts for costs.**

3.08.330 **Marshal—Duty to bring persons in custody before court.**

3.08.340 **Marshal—Daily report.**

3.08.350 **Convicted and sentenced prisoners.**

3.08.360 **Janitors.**

3.08.370 **Court costs—Surcharge.**

3.08.375 **Court costs—Surcharge—Fund.**

3.08.380 **Court costs—Additional surcharge.**

3.08.385 **Additional court cost—Certain municipal ordinance violation cases.**

3.08.390 **Additional court cost—Municipal ordinance violations.**

3.08.392 **Additional court cost.**

3.08.394 **Surcharge for state court automation.**

3.08.395 **Collection—Disbursement.**

3.08.400 **Waiver of fee.**

3.08.410 **Additional court cost—Violation of City ordinance or any criminal or traffic laws of the state.**

3.08.420 **Failure to appear.**

3.08.010 Division of case load.

The judges of the City Courts may by duly established rule, provide for the apportionment of cases between the four courts of the City without regard for the place where violations occur within the City. (1948 C., Ch. 15, § 1; 1960 C., § 170.010; 1994 C., § 3.08.010; Ord. No. 56485, § 1, 1973; Ord. No. 52095, § 2, 1963.)

3.08.020 Acting judges.

There shall be four City Courts, which shall be called City Court One, City Court Two, City Court Three and City Court Four, each to be held by a City Court Judge.

When the judge of any such court is absent or unable to hold court, the Mayor may appoint an eligible person to act during such absence or inability, who shall, for the time being, possess all the powers, take and subscribe to the same oath, and perform all the duties which are enjoined upon City Court Judges by

law and ordinances, and the acts of such judge, officiating for the City Court Judge, shall have the same legal sanction and force as though performed by the City Court Judge in person. For the service rendered by the person officiating in the stead of a City Court Judge he shall be allowed the same salary pro rata as the City Court Judge would be entitled to receive. In case a City Court Judge should be absent by reason of sickness, the salary of the person officiating in his stead shall be made chargeable to appropriations for salaries. The Clerk of the City Courts shall certify to the Comptroller the length of time any person officiating as aforesaid shall have served, whereupon the Comptroller shall issue his warrant accordingly. (1948 C., Ch. 15, § 2; 1960 C., § 170.020; 1994 C., § 3.08.020; Ord. No. 56485, § 1, 1973.)

3.08.030 Place of holding court.

City Courts One, Two, Three and Four shall be held in the building known as the Municipal Courts Building, located on the south side of Market Street, between Thirteenth Street and Fourteenth Street, in such place as directed by ordinance, or, in case of an emergency, in such place as the Mayor may direct. (1948 C., Ch. 15, § 3; 1960 C., § 170.030; 1994 C., § 3.08.030; Ord. No. 56485, § 1, 1973.)

3.08.040 Jurisdiction—Proceedings are civil actions.

The City Courts shall have jurisdiction of all suits for the recovery of any fine, forfeiture or penalty imposed for the violation or breach of any ordinance, which suits and proceedings therein shall be in the nature of a civil action. (1948 C., Ch. 15, § 5; 1960 C., § 170.040; 1994 C., § 3.08.040.)

City Counselor Ops.: 9507

Cases:

City could not appeal acquittal of defendant by municipal court because a second trial would subject defendant to double jeopardy. *Kansas City v. Bott,* 509 S.W. 2d 42 (1974).

Only the defendant may appeal from an ordinance violation prosecution, such prosecution being in the nature of a civil action. *Kansas City v. Bott,* 509 S.W. 2d 42 (1974).

A defendant who was convicted in municipal court for violation of city ordinances could not be tried by the state for grand larceny based on the same acts as were involved in violation of the ordinances as it would constitute double jeopardy. *Waller v. Florida,* 397 U.S. 387, 90 S. Ct. 1684 (1970).

City courts have jurisdiction of all cases arising from the violation of city ordinances. *State v. Mathews,* 159 S.W. 2d 767 (1942); *State v. Mathews,* 162 S.W. 2d 352 (1942); *St. Louis v. Bouchkaert,* 185 S.W. 2d 886 (1945).

A prosecution for violation of a city ordinance is in the nature of a civil action. *City of St. Louis v. Fitch,* 353 Mo. 706, 183 S.W. 2d 828 (1944).

City courts can impose a prison sentence. *St. Louis v. Von Hoffman,* 312 Mo. 600, 280 S.W. 421 (1926).

3.08.050 Sessions and holidays.

There shall be daily sessions of the City Courts, excluding Saturdays, Sundays and the following holidays: New Year's Day, Washington's Birthday, Memorial Day, Independence Day, Labor Day, Columbus Day, Armistice Day, Thanksgiving Day, Christmas Day, Rev. Dr. Martin Luther King Day, and any primary or general City, state or national election day. Sessions shall commence in City Courts numbered one and two at eight a.m. and in City Courts numbered three and four at one p.m., and all cases set for each day shall be tried on that day unless continued to another date. (1960 C., § 170.050; 1994 C., § 3.08.050; Ord. No. 56709, § 1, 1974.)

3.08.060 Guilty pleas to be heard first.

All courts shall first hear and dispose of cases in which persons desire to plead guilty in person or by representatives according to law. (1994 C., § 3.08.060; Ord. No. 56709, § 2, 1974.)

3.08.070 Judges—Appointment.

The Mayor shall appoint the City Court Judges, who shall hold their office for four years, and until their successors are appointed and qualified. (1948 C., Ch. 15, § 10; 1960 C., § 172.010; 1994 C., § 3.08.070.)

Charter:

Art. VII § 1 Appointment of city court judges and clerks of city courts

3.08.080 Judges—Qualifications.

A person to be eligible to the office of City Court Judge shall be a licensed and practicing attorney for at least five years prior to his appointment and a citizen of the United States. (1948 C., Ch. 15, § 11; 1960 C., § 172.020; 1994 C., § 3.08.080; Ord. No. 55708, § 2, 1970.)

City Counselor Ops.: 10080

3.08.090 Judges—Powers and jurisdiction.

The City Court Judges, or any acting City Court Judge pro tem, shall have and exercise such powers and jurisdiction as is or may be conferred by the Charter or by ordinance. (1948 C., Ch. 15, § 4; 1960 C., § 172.040; 1994 C., § 3.08.090.)

3.08.095 Warrants issued by municipal judges.

A. The judges of the Municipal Division of the Circuit Court of the City are hereby authorized to issue warrants for access to premises to determine the presence of vehicles which are public safety hazards and to abate such hazards.

B. Upon the showing of probable cause, a suitably restricted warrant may be issued upon the sworn application of the City Counselor's Office pursuant to

procedures issued by the administrative judge of the Municipal Division. (1994 C., § 3.08.095; Ord. No. 64443, §§ 1, 2, 1998.)

3.08.100 Rules of practice and procedure—Judges to establish.

The judges of the City Courts are empowered to establish uniform rules of practice and procedure for the City Courts supplementary to and consistent with the Missouri rules of practice and procedure in municipal and traffic courts and any applicable law. The judges shall fix the day on which the rules take effect, but no rule shall take effect until ten days after its publication. (1960 C., § 171.010; 1994 C., § 3.08.100; Ord. No. 49851, § 1, 1960.)

Supreme Court Rules:

Rule 37.01 et seq. Missouri rules of practice and procedure in municipal courts.

City Counselor Ops.: 8861, 8921, 8922, 9869

3.08.110 Rules of practice and procedure—Publication—Filing.

It shall be the duty of the Clerk of the City Courts to cause publication of rules in "The City Journal," and to keep copies of the rules on file in the office of the Clerk of the City Courts for inspection. (1960 C., § 171.020; 1994 C., § 3.08.110; Ord. No. 49851, § 2, 1960.)

Supreme Court Rules:

Rule 37.01 et seq. Missouri rules of practice and procedure in municipal courts.

City Counselor Ops.: 8736, 8861, 8921, 8922, 9869

3.08.120 Rules of practice and procedure—Amendment by ordinance.

Any rule promulgated pursuant to authority granted in Section 3.08.100 may be annulled or amended by ordinance. (1960 C., § 171.030; 1994 C., § 3.08.120; Ord. No. 49851, § 3, 1960.)

Supreme Court Rules:

Rule 37.01 et seq. Missouri rules of practice and procedure in municipal courts.

City Counselor Ops.: 8861, 8921, 8922, 9869

3.08.130 Prosecution on complaint without filing an information.

In order to supplement the Missouri rules of practice and procedure in municipal and traffic courts promulgated by the Supreme Court of Missouri July 1, 1959, the prosecutors of the municipal courts are authorized and empowered to prosecute on a complaint without filing an information. (1960 C., § 171.130; 1994 C., § 3.08.130; Ord. No. 49850, § 1, 1960.)

3.08.140 Continuances.

In accord with Section 37.39 of the Rules of the Missouri Supreme Court which provides that continuances may be granted only upon good cause being shown, it is provided that in all prosecutions in the City Courts for violations of Chapter 390 through Chapter 394 of the Revised Code of the City (known as the "Minimum Housing Standards Law") or of the Building Code of the City, being Volume II of the Revised Code of the City, after one continuance has been granted to either party, further continuances shall:

A. Not be granted unless the party making the request shall file with the Court his sworn affidavit setting forth reasons for the continuance, from which the Court may decide whether or not good cause is shown;

B. Not exceed one week or until the next date which the Court shall be in session.

The total of all continuances of prosecutions in the City Courts for violation of Chapter 390 through Chapter 394 of the Revised Code or of the Building Code of the City, being Volume II of the Revised Code, 1960, shall not exceed six weeks, including the first continuance. Nothing contained herein should be interpreted or construed as being in conflict with Section 37.39 of the Rules of the Missouri Supreme Court. (1960 C., § 171.160; 1994 C., § 3.08.140; Ord. No. 55375, § 1, 1969.)

City Counselor Ops.: 10003, 10073

3.08.150 Analysis of cases—Report to Mayor.

Each of the City Court Judges shall make a careful analysis of all cases upon his docket disposed of by him, and shall make a study of the conditions prevailing in his district with reference to violations of the ordinances of the City. He shall make a semiannual report to the Mayor, on the second days of January and June of each year or more often, when required to do so by the Mayor. The reports shall contain a tabulated statement of the number of cases originating in his district for violation of ordinances, how the same have been disposed of, the aggregate of all fines imposed in each class of cases as well as the aggregate of all fines imposed, the aggregate of fines and costs actually collected in each class of cases, as well as the aggregate of all fines and costs collected in all cases, a statement of the fines and costs which have been imposed but not

collected, and a general statement as to why the same have not been collected. Each report shall discuss in narrative form, the conditions which prevail in the district with reference to violations of City ordinances, and more especially those whose purpose is the safeguarding of public morals and decency. It shall be the duty of each City Court Judge at frequent intervals, to confer with the Chief of Police and other police officials of the City, as well as with the heads of departments of the City government, with a view to the better enforcement of the City ordinances. The City Court Judges shall incorporate in their several reports a statement as to how police officials and heads of departments of the City government have cooperated with them in the enforcement of ordinances. The reports shall also contain recommendations from the City Court Judges of such amendments to the City ordinances as in their opinion will further the interests of justice and facilitate the procedure in their courts. (1948 C., Ch. 15, § 6; 1960 C., § 172.050; 1994 C., § 3.08.150.)

3.08.160 Clerk of the City Courts—Appointment—Term—Oath—Bond.

There is created the office of Clerk of the City Courts. The Mayor shall appoint the Clerk of the City Courts, who shall hold his office for four years, and until his successor is appointed and qualified. He shall take the oath required of City officers and give bond to the City in the sum of five thousand dollars, with one or more securities, to be approved by the Comptroller, conditioned for the faithful performance of the duties required of him by law and ordinance, and for paying to the Treasurer, or any person entitled thereto, all moneys that come to him. (1948 C., Ch. 15, § 12; 1960 C., § 173.010; 1994 C., § 3.08.160.)

Charter:

Art. VII § I Appointment of city court judges and clerk of city courts

3.08.170 Clerk of the City Courts—Deputies.

The Clerk of the City Courts may appoint nine deputies, who shall aid the Clerk in the discharge of his duties and who shall perform services as the Clerk may from time to time assign to them and designate. Each Deputy Clerk is empowered to do and perform all things in the name of the Clerk as the Clerk is or may be by law empowered to do or perform. Each of the deputies shall be a qualified voter and a resident of the City for at least two years prior to his appointment. Each of the deputies shall give a bond to the City with sufficient security, to be approved by the Comptroller, in the sum of two thousand five hundred dollars for the faithful performance of his duties and for the faithful payment to the Clerk or Treasurer, or any person entitled thereto, of all moneys that may come to him. (1948 C., Ch. 15, § 13; 1960 C., § 173.020; 1994 C., § 3.08.170.)

3.08.180 Clerk of the City Courts—Duties.

The duties and requirements of the Clerk of the City Courts shall be:

A. *Generally.* He shall have the care and custody of all files, dockets and other records of the Court. He shall receive, file and preserve all papers which pertain to any proceedings had therein. He shall establish and maintain such files, dockets and other records as required. He shall make out and issue all processes, commitments and executions and when authorized shall sign the same as Clerk. He shall have authority to administer oaths and affirmations. He shall tax all costs, subject to appeal to the judges, and shall make out all fee bills therefor. He shall keep financial records pertaining to fines and costs and the collection thereof as the Comptroller from time to time may prescribe and make periodic reports of the same to the appropriate authorities of the City. He shall prepare and certify to the correctness of any transcripts of files, dockets or other records or such parts thereof as may be requested of him. His duties when not otherwise prescribed by law shall be governed, as near as may be, by the practice in the office of the clerk of criminal causes for the City.

B. *Files.* He shall establish a file for each information or complaint filed in the Court and shall number each file so established in a distinctive fashion so that no two or more informations or complaints bear the same number; said number shall be termed the "cause number." All pleadings, processes, commitments, executions and other documents pertaining to a cause shall be marked with the appropriate cause number and inserted in the appropriate file. He shall make such entries in the several files from time to time as the judges may direct in order to fully record action taken in relation thereto. He shall store all files of causes which are currently pending in the Court in a convenient location and separate from those files in which there has been a final disposition. He shall, at the request of a judge before whom any cause is presently pending, produce the file of such cause for use by said judge at his place of sitting.

C. *Dockets.* He shall cause to be prepared for each judge at the opening of each day the Court is in session a docket of all causes set for trial or other action on that day before each of the judges. He shall enter on the dockets, in an orderly fashion, the cause number, the style of the cause, the nature of the offense and other information concerning the cause as the judges may require. The judges shall note upon their respective dockets the action taken in regard to each particular cause thereon and at the conclusion of each day's session the judges shall sign their respective dockets and return them to the Clerk. It shall be the duty of the Clerk to file the dockets and the dockets shall become an official record of the Court. The dockets shall be termed "judge's docket." All entries and actions set forth on the judge's dockets shall be deemed to be the correct entries and actions of the judge and shall control over any other record or memorandum kept for the Court. It is unlawful for anyone other than a judge of the division of the Court for which such docket was prepared to change or alter the docket in any manner or form and any change or alteration made by a judge shall be initialed by him at the time of the change or alteration. The clerk, in addition to judge's dockets, shall, from time to time, prepare other dockets as the judges may request, termed "judge's special docket." He shall enter upon the special dockets causes as may be designated by the judge for whom prepared. The special dockets shall in all other respects, however, be governed by the provisions set forth for the daily dockets designated as judge's dockets.

D. *Indexes.* He shall establish and maintain, in some appropriate form, an index to be termed "general index," which shall consist of the cause numbers arranged in consecutive numerical sequence. Following each cause number he shall enter the following information in regard to each numbered cause as the information becomes available: the name or names of the persons charged; the date of the filing of the charge; the City Court where originally set for hearing; the date of the first setting; the exact nature of the final disposition; the date of final disposition; and further information as he may deem advisable or as may be designated by the judges on written notice to the Clerk. In addition to the general index, the Clerk shall establish and maintain, in some appropriate form, an "alphabetical index," which shall consist of the names of all persons against whom a cause has been filed arranged in alphabetical sequence. Following each name he shall enter the following information: the appropriate cause number corresponding to that as found in the general index; the City Court where originally set for hearing; the nature of the offense charged; the date of the filing of the cause; an indication as to whether the cause is presently pending; and further information as he may deem advisable or as may be designated by the judges on written notice to the Clerk. He shall also establish and maintain, in some appropriate form, an "appeal index," which shall consist of a chronological list of all causes in which an appeal shall have been taken from a judgment or an order of the Court. Every cause entered upon the appeal index shall be identified by its cause number; the name or names of the persons charged therein; the nature of the offense; the date and nature of the judgment or order of the City Court appealed from; the particular City Court from which the appeal is being taken; the party or parties appealing; and the date the appeal is perfected. The clerk shall, on an appeal being perfected, make out and certify to the Court to which the appeal is taken a full transcript of the proceedings had in the cause in the City Court, for which (unless the City is the appellant) he shall collect from the appellant a transcript fee of one and one-half dollar, which the Clerk shall pay into the Treasury within three days after receipt and acknowledge the payment and its date on the appeal index. The clerk shall, from time to time, establish such other indexes and records as he may deem advisable or as may be requested by the judges or other authorized officers upon receipt of a written request for the same from the judges or other authorized officers. (1948 C., Ch. 15, § 14(part); 1960 C., § 173.030(part); 1994 C., § 3.08.180; Ord. No. 49927, § 1(part), 1960.)

For duty of clerk to certify to comptroller the length of time any acting judge has served, see Section 3.08.020. For duty of clerk to publish rules of court, see Section 3.08.110.

3.08.185 Records open to inspection—Destruction of records.

All files, dockets, and other records and the contents thereof are declared public records and open to public inspection subject only to reasonable regulations governing inspection as may be set forth from time to time by the judges. The judges may, upon the written request of the Clerk, authorize the destruction, in some appropriate manner, of any of the files or other records of the Court which are no longer current and which are more than three years in age. In no event shall the judges be authorized to order the destruction of the

judge's dockets or any judge's special dockets by virtue of or pursuant to this provision. (1948 C., Ch. 15, § 14(part); 1960 C., § 173.030(part); 1994 C., § 3.08.185; Ord. No. 49927, § 1(part), 1960.)

City Counselor Ops.: 9914

3.08.190 Jury trial—Request—Selection—Verdict.

Trial by jury in the municipal courts shall be discretionary with the municipal judges. A request for a jury shall be made at or before the second setting of the case. If the judge grants a trial by jury, he shall issue an order commanding the City Marshal to summon a panel of qualified jurors from the Circuit Court jury assembly room. The jury panel shall consist of twelve qualified citizens of the City. Each party shall have three peremptory challenges so that the jury for trial shall consist of six members of the jury. The verdict of the jury must be unanimous to convict the defendant. In all other respects, a jury shall be selected in the manner provided for the selection of juries in misdemeanor cases tried in magistrate courts and by Supreme Court rules governing rules of practice and procedures in municipal courts. (1960 C., § 175.010; 1994 C., § 3.08.190; Ord. No. 56131, § 1, 1972.)

3.08.200 Jury trial—Deposit.

Upon a jury being requested and such request granted, the municipal judge may require the defendant to deposit with the Clerk of the City Clerk a sum sufficient for the fees of twelve jurors. The fee is to be the same as is currently set for jurors in the Circuit Court of the City. The Court may also require a deposit for the number of days it anticipates that the trial will consume. (1948 C., Ch. 15, § 29; 1960 C., § 175.020; 1994 C., § 3.08.200; Ord. No. 56131, § 1, 1972.)

City Counselor Ops.: 7856

3.08.210 Swearing of jurors.

Jurors shall be sworn or affirmed to well and truly try the matter in issue and a true verdict render, according to the law and evidence. (1960 C., § 175.030; 1994 C., § 3.08.210; Ord. No. 56131, § 1, 1972.)

3.08.220 Penalty when guilty.

If any jury finds the defendant guilty, it shall assess the penalty within the limits prescribed by the general penalty section of this Code if the ordinance prescribes no specific penalty or by the ordinance when it specifically prescribes the penalty. (1960 C., § 175.040; 1994 C., § 3.08.220; Ord. No. 56131, § 1, 1972.)

3.08.230 Jurors fee.

The six members of the jury finally selected shall be entitled to that fee which is currently set for jurors in the Circuit Court of the City. (1948 C., Ch. 15, § 39; 1960 C., § 175.050; 1994 C., § 3.08.230; Ord. No. 56131, § 1, 1972.)

3.08.240 Amount of costs.

A. In every suit for violation of City ordinances before City Court Judges, where the defendant is convicted, the following costs shall accrue, and shall be collected from defendant in like manner with the fine imposed a City Court Judge's fee of four dollars and seventy-five cents; a Clerk's fee of two dollars and fifty cents; a City Counselor's fee of three dollars seventy-five cents; a Marshal's fee of one dollar; a fee of fifty cents for every witness claiming it; and a fee of three dollars for each day served for every juror claiming it; to be paid into the Treasury.

B. Fees for Credit Card Transactions. A fee of four dollars ($4.00) is imposed for payment of court costs by means other than cash or negotiable instrument in order to cover the transaction costs imposed by credit card companies or other payment providers. The fee shall be collected by REJIS and said funds shall be deposited into the Treasury. (1948 C., Ch. 15, § 33; 1960 C., § 177.010; 1994 C., § 3.08.240; Ord. No. 70436, § 2, 2-3-2017; Ord. No. 56787, § 2, 1974; Ord. No. 56751, § 2, 1974; Ord. No. 55334, § 2, 1969; Ord. No. 55084, § 2, 1968; Ord. No. 48888, § 1, 1958; Ord. No. 47692, § 1, 1956.)

City Counselor Ops.: 7856

3.08.250 Deposit to cover cost upon change of venue.

Upon a change of venue being demanded by a defendant, the City Court Judge may require the defendant to deposit with the Clerk of the City Court a sum sufficient to pay the cost of the change of venue. (1948 C Ch. 15, § 34; 1960 C., § 177.020; 1994 C., § 3.08.250.)

3.08.260 Officers to attend as witnesses.

Officers shall attend as witnesses against persons whom they have arrested without being summoned, and if they fail to appear at the time of trial, they may be attached and punished for contempt, as witnesses summoned. (1948 C., Ch. 15, § 38; 1960 C., § 176.010; 1994 C., § 3.08.260.)

3.08.270 Witness fee payment—Certificate of amount.

Whenever a witness is entitled to and claims his fees for attendance at any City Court, the Clerk of the

City Courts shall give him a certificate of the amount due him, stating the name of the defendant and witness, with the date of the trial, and the Marshal shall, on the presentation of such certificate to him, pay the same from any moneys in his possession belonging to the City, when the City fails to sustain the charge and otherwise; provided, that the same has been collected from the defendant, and shall at the end of every month file every certificate with the Comptroller, who shall allow the same in settlement of the Marshal's accounts. (1948 C., Ch. 15, § 40; 1960 C., § 176.030; 1994 C., § 3.08.270.)

3.08.280 Processes and notices on City to be served on City Counselor.

All processes and notices which it may be necessary in any suit before the City Court Judge to serve on the City, shall be served on the City Counselor or the person acting in his stead. (1948 C., Ch. 15, § 45; 1960 C., § 171.050; 1994 C., § 3.08.280.)

3.08.290 Affidavit upon part of City to be made by City Counselor.

When an affidavit upon the part of the City shall be required in any cause which has originated in a City Court, it shall be made by the City Counselor, his associate or assistant, or, in case of his inability, by any person to whom the facts are known. (1948 C., Ch. 15, § 46; 1960 C., § 171.060; 1994 C., § 3.08.290.)

3.08.300 Collateral security until appeal is perfected.

Any defendant wishing to appeal from the judgment of a City Court Judge, and not being ready to enter into bonds, may, before his release from custody, deposit with the Marshal the amount of fine and costs imposed, which shall be received by the Marshal as collateral security for the fine and costs until an appeal is perfected, when it shall be returned to the defendant. If the appeal is not perfected within the time required by law, the collateral shall not be returned to the defendant, but shall be applied to satisfy the fine and costs imposed upon him. (1948 C., Ch. 15, § 52; 1960 C., § 171.070; 1994 C., § 3.08.300.)

3.08.310 When complainant or informant required to deposit costs.

The City Counselor or his representative, when he is satisfied that a complaint or information of a violation of an ordinance is made for vexation or without just cause, may, before commencing any proceedings, require the complainant or informant to deposit with the Marshal double the amount of costs that will, in his judgment, accrue in the suit. The City Court Judge may, at any time after the filing of a statement by the City Counselor or his representative, upon motion of the defendant, require the deposit of costs aforesaid. The provisions of this section shall not apply to any report, complaint or information made by any officer of the City in the discharge of his duty. (1948 C., Ch. 15, § 53; 1960 C., § 171.080; 1994 C., § 3.08.310.)

3.08.320 Accounts for costs.

The Comptroller shall audit and allow all accounts for costs which shall have accrued in suits before the City Court Judge, or suits appealed from the City Court to the Court of Criminal Correction, and for which the City shall have become liable by reason of judgment against it by the City Court Judge or Judge of the Court of Criminal Correction, as the case may be. Accounts are to be duly certified as correct by the Clerk of the City Courts or the Clerk of the Court of Criminal Correction, as the case may be. The Comptroller shall thereupon draw his warrant therefor upon the Treasurer, payable out of the appropriation for expenses. (1948 C., Ch. 15, § 55; 1960 C., § 171.090; 1994 C., § 3.08.320.)

3.08.330 Marshal—Duty to bring persons in custody before court.

At the opening of the City Court each day the Marshal shall bring before the Court, for trial, all persons who may be in custody for violation of ordinances. The jail keepers shall, for this purpose, deliver to the Marshal all the prisoners in their keeping. No person whose case has been continued to a later day shall be required to be so brought before the Court, unless by order of the City Court Judge. (1948 C., Ch. 15, § 27; 1960 C., § 171.040; 1994 C., § 3.08.330.)

City Counselor Ops.: 8736

3.08.340 Marshal—Daily report.

The Marshal shall make daily, for the information and use of the Mayor, a special report of the proceedings of each City Court, in which he shall enter the names of every person fined, in the order in which their names appear on the docket of the City Court Judge, the date of trial, the violation of offense alleged and the judgment rendered. The report shall be carefully compared with the docket of the City Court, at the adjournment of the City Court, and when compared shall be

signed by the Marshal and immediately forwarded to the Mayor. (1948 C., Ch. 15, § 57; 1960 C., § 171.100; 1994 C., § 3.08.340.)

3.08.350 Convicted and sentenced prisoners.

It shall be the duty of the Marshal each day after the session of the City Courts to deliver each and every prisoner convicted and sentenced by either of the City Courts to the officer designated and appointed to superintend the conveyance of prisoners to the workhouse or elsewhere, in accordance with the judgment of the Court, together with the original execution or a true copy of the same. The officer having charge of the prisoners shall deliver the prisoners, with a true copy of the execution against each party sentenced and convicted, to the warden of the workhouse, or other proper person designated, taking his receipt for each and every person delivered to him, which shall be indorsed upon the original execution, and which shall be returned to the Marshal at his office. (1948 C., Ch. 15, § 58; 1960 C., § 171.110; 1994 C., § 3.08.350.)

3.08.360 Janitors.

Each of the Judges of the City Courts is authorized to appoint a janitor whose duties it shall be to keep the chambers in which the Court is held in an orderly and clean condition, and to perform other duties as janitor as the Judges may from time to time direct. (1948 C., Ch. 15, § 9; 1960 C., § 172.030; 1994 C., § 3.08.360.)

3.08.370 Court costs—Surcharge.

In addition to any fine or other costs that may be imposed by the municipal judge, there shall be assessed as a surcharge in all cases, except for parking violations and when costs are to be paid by the City or in any court proceeding when the proceeding or defendant has been dismissed by the Court, the sum of two dollars ($2.00) for the training of peace officers. This surcharge shall be transmitted daily to the Treasurer of the City of St. Louis in the form and manner prescribed by the Comptroller of the City of St. Louis. (1994 C., § 3.08.370; Ord. No. 63955, § 2, 1996; Ord. No. 61294, § 1, 1989.)

3.08.375 Court costs—Surcharge—Fund.

The Comptroller shall hold such surcharge collected pursuant to Section 3.08.370 in a special fund. Funds received pursuant to Section 3.08.370 shall be used only to pay for training required as provided in RSMo 590.100 to 590.180, provided that any excess funds not needed to pay for such training may be used to pay for additional training for peace officers as defined in RSMo 590.100. All expenditures from said fund shall be appropriated in accordance with applicable law. (1994 C., § 3.08.378; Ord. No. 63955, § 3, 1996.)

3.08.380 Court costs—Additional surcharge.

In addition to any other fine or other costs that may be imposed by a municipal judge, there shall be assessed as costs in all cases, an additional surcharge of one dollar ($1.00) pursuant to the authority granted pursuant to RSMo 488.5336. This additional surcharge shall be collected and disbursed as provided by state law and deposited with the Treasurer of the State in the Peace Officer Standards and Training Commission Fund to be used statewide for training of peace officers. (1994 C., § 3.08.380; Ord. No. 63955, § 4, 1996; Ord. No. 61294, § 2, 1989.)

3.08.385 Additional court cost—Certain municipal ordinance violation cases.

A. Pursuant to the authority of RSMo 479.261, there is hereby established and assessed an additional court cost of one dollar ($1.00) per municipal ordinance violation cases filed before a municipal division judge or associated circuit judge for the purpose of providing operating expenses for shelters for battered persons as defined in RSMo 455.000 to 455.230.

B. The said additional court cost shall be collected by October 9, 1992 by the Clerk of the City Courts and disbursed bi-weekly to the Comptroller who shall establish a special fund to be used solely for providing operating expenses for shelters for battered persons as defined in RSMo 455.000 to 455.230. All interest earned by the funds deposited in such special fund shall be retained in the fund to be appropriated accordingly. Appropriations of money from said fund may only be made upon approval of the Board of Estimate and Apportionment and the Board of Aldermen, and the appropriated funds shall be administered by the Department of Human Services. (1994 C., § 3.08.385; Ord. No. 65084, § 1, 2000; Ord. No. 62751, §§ 1, 2, 1992.)

Editor's Note:

The reference RSMo 479.261 has been transferred to RSMo 488.607 (2016).

The references to RSMo 455.00 should be to RSMo 455.200 (2016).

3.08.390 Additional court cost—Municipal ordinance violations.

Pursuant to the authority of Senate Bill No. 267 of the 91st General Assembly, there is hereby established

and assessed an additional court cost of five dollars ($5.00) per municipal ordinance violation case filed before a municipal division judge or associate circuit judge for the purpose of restoration, maintenance and upkeep of the municipal courthouse. The costs collected may be pledged to directly or indirectly secure bonds for the cost of restoration, maintenance and upkeep of the municipal courthouse. (1994 C., § 3.08.390; Ord. No. 65438, § 1, 2002.)

Editor's Note:

The Senate Bill reference is to RSMo 488.2215 (2016).

3.08.392 Additional court cost.

Pursuant to the authority of Senate Bill No. 267 of the 91st General Assembly, there is hereby established and assessed an additional court cost of twenty dollars ($20.00) per municipal ordinance violation case filed before a municipal division judge or associate circuit judge. The cost shall be collected by the Clerk of the City Courts and the Clerk shall pay said funds into the City Treasury monthly.

The said additional court costs shall be assessed and collected beginning the first day of the month following the effective date of this section.

The judge may waive the assessment of the cost in those cases where the defendant is found by the judge to be indigent and unable to pay the cost. (1994 C., § 3.08.392; Ord. No. 65779, §§ 1—3, 2002.)

Editor's Note:

The Senate Bill reference is to RSMo 488.2210 (2016).

3.08.394 Surcharge for state court automation.

In addition to any cost which may be assessed by Municipal Division of the Twenty-Second Judicial Circuit. St. Louis City Court, pursuant to statute, ordinance or court rule, in every proceeding filed in City Court for violation of a municipal ordinance in which costs are assessed by the court, a surcharge of seven dollars ($7.00) shall be assessed. Such surcharge shall also be assessed in cases in which pleas of guilty are processed in the violations bureau. No such surcharge shall be assessed or collected when the proceeding or defendant has been dismissed or acquitted by the court or when costs are waived by the court. Such surcharge shall be collected by City Court and transmitted monthly to the Missouri Director of Revenue to the credit of the Missouri Statewide Court Automation Fund as provided in RSMo 488.012.3(5) and 488.027.2.
(Ord. No. 71710, § 1, 7-31-2023)

3.08.395 Collection—Disbursement.

The said additional court costs shall be assessed and collected beginning the first day of the month following the effective date of this chapter, and shall be disbursed monthly to the Comptroller who shall establish a special fund to be used solely for restoration, maintenance and upkeep of the municipal courthouse. The costs collected may be pledged to directly or indirectly secure bonds for the cost of restoration, maintenance and upkeep of the court house. Appropriations of money from said fund may only be made upon approval of the Board of Estimate and Apportionment and the Board of Aldermen. (1994 C., § 3.08.395; Ord. No. 65438, § 2, 2002.)

3.08.400 Waiver of fee.

The judge may waive the assessment of the cost in those cases where the defendant is found by the judge to be indigent and unable to pay the costs. (1994 C., § 3.08.400; Ord. No. 65438, § 3, 2002.)

3.08.410 Additional court cost—Violation of City ordinance or any criminal or traffic laws of the state.

A. There is hereby imposed as an additional court cost a charge of two dollars ($2.00) in all criminal cases including violations of any City ordinance or any violation of criminal or traffic laws of the state, including an infraction, and any violation of municipal ordinance, except that no such fee shall be collected with the proceeding or defendant has been dismissed by the Court or when costs are to be paid by the City of St. Louis or the State of Missouri. All such fees shall be payable to the City Treasurer, who shall deposit such funds in an Inmate Security Fund, to be utilized to develop biometric identification systems to ensure that inmates can be properly identified and tracked within the City Jail system. Upon the implementation of the biometric identification system, funds in the Inmate Security Fund may be used for the maintenance of the biometric identification system and to pay for any expenses related to custody and housing and other expenses for prisoners.

B. The Comptroller of the City of St. Louis is hereby authorized and directed to establish a special account to be known as the Inmate Security Fund in which all funds received pursuant to this section shall be deposited and such funds shall be kept separate and apart from all other funds. Such funds are hereby appropriated for the development and maintenance of

biometric identification systems for inmate identification and tracking within the City Jail system, and to pay for any other expenses related to custody, housing and other expenses of prisoners. All interest generated on deposited funds shall be accrued to the Inmate Security Fund Account. (1994 C., § 3.08.410; Ord. No. 67189, §§ 1, 2, 2006.)

3.08.420 Failure to appear.

A. No person who has been lawfully summoned to appear in the Municipal Division of the Circuit Court of the City of St. Louis to answer to lawful charges for violations of any of the ordinances of the City shall fail to appear on the day and at the hour to which such person has been summoned.

B. No person who has been convicted of, pleaded guilty to or been found guilty of any offense in the Municipal Division of the Circuit Court of the City of St. Louis and who has been sentenced to pay any fine or otherwise required by law or cost of court or expenses associated with such offenses shall fail to appear on the day and at the hour of the court date to pay such fine, penalty, costs or reimbursement as required by the Court.

C. The penalty for violating this section shall be a fine of not less than one dollar nor more than five hundred dollars. (1994 C., § 3.08.420; Ord. No. 68656, §§ 1—3, 6-2-2010)

Chapter 3.09

SHERIFF

Sections:

3.09.010 Powers and duties.

3.09.020 Restrictions on Sheriff's enforcement powers.

3.09.030 Expenses.

3.09.040 Sunset clause.

3.09.010 Powers and duties.

The Sheriff of the City of St. Louis shall possess and exercise all powers and duties given the Sheriff by the Missouri Constitution, by Missouri statute, and by City of St. Louis ordinance; such powers and duties include protection of the 22nd Judicial Circuit, Circuit and Associate Circuit courts, service of summons and legal process, issuance of conceal carry permits, and the transport and protection of detainees in the custody of the Department of Corrections to receive hospital, medical, and psychological treatment.
(Ord. No. 72034, § 1, 9-22-2025.)

3.09.020 Restrictions on Sheriff's enforcement powers.

The Sheriff of the City of St. Louis shall not make arrests, subdue subjects, conduct searches, investigate crimes, collect evidence, or otherwise enforce the general criminal laws of the State of Missouri and City of St. Louis, except as specifically provided by the Missouri Constitution, by Missouri statute, and by City of St. Louis ordinance.
(Ord. No. 72034, § 2, 9-22-2025.)

3.09.030 Expenses.

When submitting requisitions or contracts related to necessary expenses incurred in the conduct of the duties of the Sheriff's Office, the Sheriff's Office shall also provide the Comptroller's Office with a written explanation of how the expense is a necessary expense incurred in the conduct of the duties of the Sheriff's Office. In addition, beginning the month immediately following the effective date of this Ordinance, the Sheriff's Office shall provide by the end of each month to both the Budget and Public Safety Committees of the Board of Aldermen, or their successor committees, a monthly written report detailing the expenses incurred and contracts entered into by the Sheriff's Office.
(Ord. No. 72034, § 3, 9-22-2025.)

3.09.040 Sunset clause.

Section 3.09.030 of this chapter shall be repealed effective immediately upon the Sheriff's Office submitting twelve (12) reports to the Board of Aldermen in accordance with the rules and requirements outlined in Section Three.
(Ord. No. 72034, § 4, 9-22-2025.)

Chapter 3.10

LAW DEPARTMENT

Offices in city hall, see § 3.56.030

City Counselor Ops: 8178

Sections:

3.10.010 Composition.

3.10.020 City Counselor—Head of Law Department—Appointment of subordinates—Powers and duties generally.

3.10.030 City Counselor—Bond.

3.10.040 City Counselor—Duties.

3.10.050 Special counsel.

3.10.060 Apportionment of salaries of attorneys and employees of Law Department engaged in bond issue projects.

3.10.070 Chief clerk to be notary public.

3.10.010 Composition.

The Law Department shall consist of a City Counselor, a First Associate City Counselor and other associate City Counselors, Assistant City Counselors and employees as may from time to time be authorized. (1948 C., Ch. 2, § 32; 1960 C., § 14.010; 1994 C., § 3.10.010.)

Charter:

Art. X Law Department

Art. VIII § 1 Appointment of City Counselor by Mayor.

McQuillin:

12.52 Law Department, generally.

3.10.020 City Counselor—Head of Law Department—Appointment of subordinates—Powers and duties generally.

The City Counselor shall be the head of the Law Department. He shall appoint the first associate, and all other associates and assistants and employees in his department. He shall, through the Law Department, direct the management of all of the litigations in which the City is a party, including service in the City Courts. The City Counselor shall represent the City in all legal matters and proceedings in which the City is a party or interested, or in which any of its officers are officially interested. He shall advise the Board of Aldermen, or any committee or member thereof, and the Mayor and the heads of all departments, and through the Mayor and heads of departments all other officers of the City, as to all legal questions affecting the City's interest. The City Counselor shall approve as to form all contracts, deeds, bonds and other documents to be signed in the name of, or made to or with the City. He shall render the Police Department all legal advice and services required by it. (1948 C., Ch. 2, § 33; 1960 C., § 14.020; 1994 C., § 3.10.020.)

To serve on:

Convention and exhibition center commission, see § 3.62.020.

Municipal auditorium commission, see 3.56.150.

For representative to serve on traffic commission, see § 3.34.040.

Cases:

City counselor was not required to represent a police officer who was sued in tort, where the petition alleged conduct on the part of the officer amounting to willful and malicious actions and having transcended his authority as a police officer. *Roberts v. City of St. Louis,* 242 S. W. 2d 293 (1951).

3.10.030 City Counselor—Bond.

The City Counselor shall, within fifteen days after his appointment, give a bond, to be approved by the Comptroller, in the sum of ten thousand dollars, conditioned for the faithful performance of the duties of the office and that he will pay over all moneys belonging to the City as provided by law. (1948 C., Ch. 2, § 34; 1960 C., § 14.030; 1994 C., § 3.10.030.)

3.10.040 City Counselor—Duties.

In addition to the duties prescribed in the Charter and in existing ordinances not inconsistent with the Charter, it shall be the duty of the City Counselor:

A. To initiate and prosecute in the Circuit Court all proceedings relating to the appropriation of any private property or any easement or use therein for any public use, or arising out of any public improvement or work which will damage private property, as prescribed and required in Article XXI of the Charter;

B. To prepare and cause to be published in the paper doing the City publishing, at least ten days before a recall, initiative or referendum election, a summary of the statements concerning any ordinance or recall proposition to be voted on at the election which may have been presented to him in accordance with the provisions of Article VI § 6 of the Charter;

C. To make recommendations to the Board of Aldermen upon all claims for damages submitted to him by the Board on account of alleged injuries to persons or property, in accordance with the provisions of Article IV § 26 of the Charter;

D. To keep a record of all legal opinions officially given by him in writing, with the request therefor and an index thereto, and an account book of all claims on behalf of the City or any officer thereof placed in his hands for collection. All moneys received by him on account of the City shall be paid into the City Treasury within twenty-four hours after its receipt by him, for which duplicate receipts shall be taken, one of which shall be filed in the Comptroller's Office;

E. To keep a book or docket in which he shall enter an abstract of all suits pending in favor of or against the City, in tabular form substantially as follows: names of parties; suits, when brought; in what court; nature of action; names of witnesses; proofs, etc., for the City; amount of judgment, date of judgment and date of execution; which book or docket shall be delivered by him to his successor in office;

F. To prosecute an appeal or writ of error in any case in which the City is concerned, and make proper affidavits thereof, whenever such course is deemed advisable by him;

G. Whenever any committee of the Board of Aldermen or any member of the Board shall submit to him a copy of any bill pending in the Board or draft of any proposed ordinances about to be introduced into the Board by any member thereof, with the request that he make alterations or modifications in the form of the copy of a bill or draft of an ordinance, if any are necessary, as will make the bill or proposed ordinance as altered or modified conform to the proper Charter requirements as to the form of ordinance, to make the alterations or modifications as expeditiously as possible and return the copy of the bill or draft of ordinance so modified to the committee by which, or to the member by whom, the same was presented to him;

H. To prepare all charges and to prosecute and to defend before the City Courts, or Justices of the Peace, or the St. Louis Court of Criminal Correction, all actions on behalf of the City, or emanating from the Board of Police Commissioners, or any department of the City, and defend before such courts all actions against any officer or servant or agent of the City, or the Board of Police Commissioners, on account of his acts, and to attend to appellate courts to all appeals or writs of error in any case originating as aforesaid;

I. To, in addition to his office in the City Hall, maintain an office in the building known as the "Municipal Courts Building."

The duties of the City Counselor as defined in this section shall be either personally performed by him or by any associate or assistant City Counselor or employee of the Law Department as the City Counselor may from time to time direct. (1948 C., Ch. 2, § 35; 1960 C., § 14.040; 1994 C., § 3.10.040.) For defense of firemen, see § 3.24.490.

Charter:

Art. IV § 26 Prohibits board of aldermen to pay damages for alleged injuries to persons or property except upon recommendation of city counselor

Art. VI § 6 Duties concerning filing and publication of statements relating to initiative or recall

Art. XVIII §§ 13, 24 Duty of city counselor relative to the collection of unauthorized compensation

Art. XXV § 8 Appeals by city in judicial proceedings

3.10.050 Special counsel.

The City Counselor may employ special counsel to represent the City in public utility and interstate commerce proceedings, in patent cases, tax cases and in all other matters requiring the services of special counsel. The compensation of a special counsel shall be fixed by the City Counselor, with the approval of the Board of Estimate and Apportionment, and they shall devote to the service of the City only such portion of their time as shall be necessary for the performance of their duties, as prescribed by the City Counselor. (1948 C., Ch. 2, § 36; 1960 C., § 14.050; 1994 C., § 3.10.050.)

3.10.060 Apportionment of salaries of attorneys and employees of Law Department engaged in bond issue projects.

The salaries of attorneys and employees of the Law Department, part of whose services are in connection with bond issue projects, shall be apportioned as accurately as possible between bond issue projects and general revenue.

The part of salaries apportioned to services pertaining to bond issue projects shall be paid from municipal revenue until money has become available from the sale of bonds so authorized to be issued. Immediately after money has become available and duly applicable to services rendered relative to any project begun in anticipation of, or pursuant to, the sale of bonds, the Comptroller is authorized and directed to transfer from such money to municipal revenue the amount of the salaries pertaining to bond issue projects. (1948 C., Ch. 2, § 37; 1960 C., § 14.060; 1994 C., § 3.10.060.)

3.10.070 Chief clerk to be notary public.

The chief clerk shall be a notary public and shall perform notarial services as may be required of him by the City Counselor. The City shall pay the necessary fees and expenses for the qualification and the premium on the bond of the chief clerk as notary public. No additional compensation shall be allowed or paid the chief clerk for services rendered the City as notary public. (1948 C., Ch. 2, § 38; 1960 C., § 14.070; 1994 C., § 3.10.070.)

Chapter 3.12

BOARD OF POLICE COMMISSIONERS

Charter:

Art. I § 1(21) Police and excise departments

Art. XIII § 15(a) Division of police under department of public safety Scheme § 14 Metropolitan police

RSMo:

RSMo 84.010 et seq. Police department in St. Louis

Ops. Atty. Gen.:

St. Louis board of police commissioners may discontinue the use of a station house if it deems it is no longer needed in the administration of police matters in the particular police district. No. 46, April 27. 1960. Employees of Brink's, Inc. who act as armed guards within the city must be licensed by the board of police commissioners of the city. No. 282, July 1, 1970.

City of St. Louis has no authority to require that officers of the police force of the city hired after a specified date reside within the city. No. 276, October 16, 1973.

With respect to the issuance of summonses and the acceptance of bail by police officers of the city of St. Louis, see No. 323, December 10, 1973.

Cases:

The St. Louis Board of Police Commissioners is a "state agency" subject to article X, section 21 of the Missouri Constitution which prohibits state agencies from requiring increased activity of cities or other political subdivisions without an attendant state appropriation to cover the increased cost. *State ex rel. Sayad v. Zych,* 642 S.W.2d 907 (Mo. banc 1982).

McQuillin:

45.06 Police force

Sections:

3.12.005	**Local control and responsibility for the City's Police Department.**
3.12.010	**Identification cards for members of the press and attaches of radio stations.**
3.12.020	**Automobile placards for members of the press and attaches of radio stations.**
3.12.030	**Unauthorized cards, placards or other emblems.**
3.12.040	**Memoranda or records of arrest not to be released.**
3.12.050	**Each disclosure a separate violation.**
3.12.060	**Penalty.**
3.12.070.	**City as successor to Board of Police Commissioners.**

3.12.005 Local control and responsibility for the City's Police Department.

Pursuant to the terms and provisions of Section 84.344.4 of the Revised Missouri Statutes, the City hereby accepts responsibility, ownership, and liability as successor-in-interest for contractual obligations, indebtedness, and other lawful obligations of the Board of Police Commissioners of the Police Department, effective September 1, 2013 or on such later date as may be established in subsequent City legislation. (Ord. No. 69489, 4-26-2013)

3.12.010 Identification cards for members of the press and attaches of radio stations.

The Board of Police Commissioners is authorized to issue to bona fide members and employees of the press and attaches of licensed radio stations operating for public convenience and necessity, identification cards under rules and regulations as the Board of Police Commissioners shall prescribe. The identification cards shall contain the name and address of the holder and set out the name of the employer, newspaper or radio station to which the person is attached. The identification cards shall contain the signature of the person to whom issued. (1948 C., Ch. 51, § 1; 1960 C., § 654.010; 1994 C., § 3.12.010.)

3.12.020 Automobile placards for members of the press and attaches of radio stations.

The Board of Police Commissioners is authorized to issue to bona fide members and employees of the press and attaches of licensed radio stations operating for public convenience and necessity, an automobile placard under rules and regulations as the Board of Police Commissioners shall prescribe. The placards shall contain the word "Press" and the official insignia of the Board of Police Commissioners. The placard shall be conspicuously placed upon the motor vehicle of the one to whom it is issued in a manner prescribed by the Board of Police Commissioners and not otherwise prohibited by law. (1948 C., Ch. 51, § 2, 1960 C., § 654.020; 1994 C., § 3.12.020.)

3.12.030 Unauthorized cards, placards or other emblems.

It is unlawful for any person in the City, without having had issued by the Board of Police Commissioners a card or placard, to wear, display or have on his person any card, badge or other emblem, or to operate a motor vehicle upon which a placard, plate, sticker or sign has been placed which purports, represents or in any manner indicates that the wearer or possessor thereof or operator of the motor vehicle thereof, has had issued by the Board of Police Commissioners a card or placard or other emblem. (1948 C. Ch 51, § 3; 1960 C., § 654.030; 1994 C., § 3.12.030.)

3.12.040 Memoranda or records of arrest not to be released.

Memoranda or records of the arrest or arrests of any persons suspected of or charged with offense against the law including offenses for felony, misdemeanor or the violation of an ordinance (except offenses involving violation of state or local traffic laws), or other offense whatsoever against the laws or ordinances of a city, a county, a state or the federal government wherein the arrest does not culminate in a conviction therefor, shall not be disclosed in any manner after thirty days or more have expired following the arrests to any person other than staff members of the offices of the Circuit Attorney and City Counselor, prosecuting attorneys, United States district attorneys, United States judges, Federal Bureau of Investigation, all other federal, state, county or municipal law or ordinance, judges of the St. Louis Court of Criminal Correction, judges of the City Courts, magistrates outside the City and their equivalents, probation officers, judges of the Circuit Court for Criminal Causes, circuit judges and their equivalent and judges assigned to administer the juvenile laws of this state, for their use in processing criminal investigations. (1960 C., § 803.010; 1994 C., § 3.12.040; Ord. No. 51514, § 1, 1962.)

RSMo:

RSMo 610.100 *et seq.*

3.12.050 Each disclosure a separate violation.

Every disclosure of any memorandum or record of arrest shall constitute a separate violation. (1960 C., § 803.020; 1994 C., § 3.12.050; Ord. No. 51514, § 2, 1962.)

3.12.060 Penalty.

Every person convicted of a violation of Sections 3.12.040 and 3.12.050 shall be fined not less than fifty dollars nor more than five hundred dollars or by imprisonment for not more than ninety days or by both such fine and imprisonment. (1960 C., § 803.030; 1994 C., § 3.12.060; Ord. No. 51514, § 3, 1962.)

3.12.070. City as successor to Board of Police Commissioners.

Pursuant to the terms and provisions of RSMo 84.344.4, the City hereby accepts responsibility, ownership, and liability as successor-in-interest for contractual obligations, indebtedness, and other lawful obligations of the Board of Police Commissioners of the Police Department, effective September 1, 2013 or on such later date as may be established in subsequent City legislation. (Ord. No. 69489, 7-2-2013)

Chapter 3.14

CITY MARSHAL

Duties for city court, see §§ 3.08.330, 3.08.340.

Charter:

Art. XI City marshal

Art. XXV § 13 Marshal to execute process for boards and officers

Scheme § 6 City marshal to assume duties of former county marshal

Scheme § 18 Duties of city marshal

McQuillin:

45.10 City marshal

Sections:

3.14.010 Bond.

3.14.020 Accounts—Daily statements—Payments.

3.14.030 Deputies—Appointment.
3.14.040 Deputies—Powers.
3.14.050 Sale of certain property—Authorized.
3.14.060 Sale of certain property—Proceeds.
3.14.070 Deadly weapons—Disposal—Unclaimed.
3.14.080 Deadly weapons—Disposal—-Absence of permit.

3.14.010 Bond.

The City Marshal shall, within ten days after appointment, give a bond to the City in the sum of ten thousand dollars. (1948 C., Ch. 51, § 6; 1960 C., § 174.010; 1994 C., § 3.14.010.)

3.14.020 Accounts—Daily statements—Payments.

The City Marshal shall keep a detailed account of all money received by him or in his office and of all delinquencies and make complete monthly reports thereof to the Comptroller. Except in City Court cases, he shall make daily statements to the Comptroller at two p.m. of all fines imposed, fines paid, fines remitted and costs paid, pay the receipts of his office to the Treasurer, and take the receipt of the Treasurer therefor in duplicate, one copy of which he shall file with the Comptroller. (1948 C., Ch. 51, § 7; 1960 C., § 174.020; 1994 C., § 3.14.020.)

3.14.030 Deputies—Appointment.

The City Marshal shall appoint one chief deputy, one deputy of the first class, nine deputies of the second class, deputies of the third class as may be required, and other assistants as he may from time to time find necessary. (1948 C., Ch. 51, § 8; 1960 C., § 174.030(part); 1994 C., § 3.14.030.)

3.14.040 Deputies—Powers.

The deputies appointed by the City Marshal shall have the same power and authority as the City Marshal. (1948 C., Ch. 51, § 9; 1960 C., § 174.030(part); 1994 C., § 3.14.040.)

3.14.050 Sale of certain property—Authorized.

The City Marshal is authorized to sell and dispose of the property of the prisoners and property left in his care as evidence which has not been claimed within six months of the date of trial. (1948 C., Ch. 51, § 10; 1960 C., § 174.040(part); 1994 C., § 3.14.050.)

3.14.060 Sale of certain property—Proceeds.

The proceeds of the sale, after payment of the expense of the preservation and sale of the property, under Section 3.14.050, shall be paid into the City Treasury. (1948 C., Ch. 51, § 11; 1960 C., § 174.040(part); 1994 C., § 3.14.060.)

3.14.070 Deadly weapons—Disposal—Unclaimed.

All firearms, bowie knives, dirks, daggers, slung shots and other deadly weapons which have been unclaimed, shall be broken up by the City Marshal before disposing of them. (1948 C., Ch. 51, § 12; 1960 C., § 174.050; 1994 C., § 3.14.070.)

3.14.080 Deadly weapons—Disposal—-Absence of permit.

The City Marshal is authorized to break up and dispose of any pistol, revolver or other firearm of a size which may be concealed on a person, taken from prisoners, if a permit for possession of the weapon has not been obtained from the Circuit Clerk, as provided by law. (1948 C., Ch. 51, § 13; 1960 C., § 174.060; 1994 C., § 3.14.080.)

Chapter 3.16

LEGAL SERVICES

City Counselor Ops.: 8178, 8585, 8769, 9362

Sections:

3.16.010 Public Defender Bureau—Director and assistants—Duties.
3.16.020 Public Defender Bureau—When services discontinued.
3.16.030 Legal Aid Bureau—Director and assistants—Duties.
3.16.040 Bureau directors may be one person.
3.16.050 Public Defender and Legal Aid Advisory Board.
3.16.060 Bureau reports.

3.16.010 Public Defender Bureau—Director and assistants—Duties.

There shall be in the Department of Welfare the Public Defender Bureau which shall be headed by a director appointed by the Director of Welfare. The Director of the Public Defender Bureau may appoint assistants and subordinates as may be necessary to carry out the duties and functions prescribed. The Director of the Bureau shall be an attorney licensed to

practice law in the State of Missouri for at least three years prior to his appointment. The Director of the Bureau shall have charge and supervision of the office and work of the Bureau. The functions of the Public Defender Bureau shall be:

A. To provide legal services for any poor person financially unable to procure necessary legal services when accused of committing a state felony, state misdemeanor or an ordinance violation;

B. To provide or obtain such investigatory and other services necessary for a complete defense of any such poor person;

C. To provide the legal and other services mentioned above at all stages of the proceedings necessary fully to advise and protect any such poor person;

D. To cooperate with assigned counsel, voluntary legal aid or defender associations and other interested in the defense of any such poor person. The Director may procure assistance as investigators in such work from advanced law students authorized by the various law schools as a part of their curriculum to participate in such work. (1948 C., Ch. 2, § 81(a); 1960 C., § 186.010; 1994 C., § 3.16.010; Ord. No. 56467, § 1, 1973; Ord. No. 52735, § 1, 1964; Ord. No. 49758, § 1, 1959.)

RSMo:

RSMo Ch. 600 (2016) Public defenders

3.16.020 Public Defender Bureau—When services discontinued.

Public defender services provided in state felony, state misdemeanor, or City ordinance violation under Section 3.16.010 shall be discontinued for a given class of violation when the State of Missouri shall adequately provide for and fund a state public defender system which provides legal services for such class of violation. (1994 C., § 3.16.020; Ord. No. 56467, § 2, 1973.)

RSMo:

RSMo Ch. 600 (2016) Public defenders

3.16.030 Legal Aid Bureau—Director and assistants—Duties.

There is established in the Department of Welfare the Legal Aid Bureau which shall be headed by a director appointed by the Director of Welfare. The Director of the Bureau is authorized to appoint assistants and subordinates as may be necessary to carry out the duties and functions prescribed. The Director of the Bureau shall be an attorney licensed to practice law in the State of Missouri for at least three years prior to his appointment. The Director of the Bureau shall have charge and supervision of the office and work of the Bureau. The functions of the Legal Aid Bureau shall be to provide legal aid to all worthy people of the City, who, because of their financial inability to pay therefor, are unable to procure necessary legal aid or services. Aid may be furnished by the Bureau, either without charge or with such slight charge as the Director of Welfare may from time to time prescribe or approve. (1948 C., Ch. 2, § 81(b); 1960 C., § 186.020; 1994 C., § 3.16.030; Ord. No. 49758, § 1, 1959.)

3.16.040 Bureau directors may be one person.

The Director of Welfare may appoint one director to head both the Public Defender Bureau and the Legal Aid Bureau and this director shall be an attorney licensed to practice law in the State of Missouri for at least three years prior to his appointment. (1948 C., Ch. 2, § 82; 1960 C., § 186.030; 1994 C., § 3.16.040; Ord. No. 49758, § 1, 1959.)

City Counselor Ops.: 8414

3.16.050 Public Defender and Legal Aid Advisory Board.

There shall be a Public Defender and Legal Aid Advisory Board which shall consist of seven persons who shall be appointed by the Mayor. In making the appointments, the Mayor shall give consideration to representation from the following organizations and institutions: Mound City Bar Association, Bar Association of St. Louis, The Lawyers Association of St. Louis, Washington University School of Law, and St. Louis University School of Law. The Board shall advise the Director of Welfare on matters pertaining to the Public Defender Bureau and Legal Aid Bureau. The members shall be residents of the City and shall serve without compensation. (1960 C., § 186.040; 1994 C., § 3.16.050; Ord. No. 52735, § 2, 1964.)

3.16.060 Bureau reports.

The Director or Directors of the Public Defender Bureau and Legal Aid Bureau shall prepare and furnish to the Advisory Board and to the Board of Aldermen reports on the activities of the bureaus at such times and in such detail and on such subjects as either the Advisory Board or the Board of Aldermen may require. (1960 C., § 186.050; 1994 C., § 3.16.060; Ord. No. 52735, § 2, 1964.)

Chapter 3.17

CIRCUIT ATTORNEY

Sections:

3.17.010 **Circuit Attorney empowered to perform additional duties.**

3.17.020 **Compensation.**

3.17.030 **Commencement of additional duties and compensation.**

3.17.010 Circuit Attorney empowered to perform additional duties.

Pursuant to the enabling authority of RSMo 56.453 (Senate Committee Substitute for Senate Bill No. 601, 82nd General Assembly, Second Regular Session) this chapter is enacted to empower the Circuit Attorney of the City to perform the additional duties in addition to all other duties imposed upon the Circuit Attorney by law, as are enumerated in said RSMo 56.453. (1994 C., § 3.17.010; Ord. No. 59305, § 1, 1984; Ord. No. 58383, § 1, 1981.)

3.17.020 Compensation.

Upon the agreement of the Circuit Attorney to perform such enumerated duties in addition to all other duties imposed upon such official by law, the Circuit Attorney shall receive in addition to all other compensation provided by law an annual sum of twenty-seven thousand five hundred dollars, to be paid in the same manner as the Circuit Attorney's other compensation, commencing upon the effective date of this chapter. The Circuit Attorney's agreement shall be evidenced by filing a written declaration to such effect with the City of St. Louis Recorder of Deeds and the City Register. (1994 C., § 3.17.020; Ord. No. 59305, § 2, 1984; Ord. No. 58383, § 2, 1981.)

Editor's Note:

Ordinance 59305 was approved November 20, 1984.

3.17.030 Commencement of additional duties and compensation.

The performance of the additional duties and payment of the additional five thousand dollars compensation provided for the Circuit Attorney herein shall, according to said RSMo 56.453, commenced on January 1, 1985. (1994 C., § 3.17.030; Ord. No. 59305, § 3, 1984; Ord. No. 58383, § 3, 1981.)

Chapter 3.18

REGISTER

Duty to give notice of vacancy on board of aldermen, see § 3.06.060.

City Counselor Ops.: 8178

Sections:

3.18.010 **Office and duties generally.**

3.18.020 **Duty to procure and issue license plates, tags, and forms, permits and certificates.**

3.18.030 **Appointment of deputy registers, storekeeper and stenographer-clerk.**

3.18.040 **Bond.**

3.18.050 **Fees for certified copies furnished by Register.**

3.18.060 **Authority of Register to loan official documents—Receipt.**

3.18.010 Office and duties generally.

The office and duties of the Register shall be as provided by the Charter and ordinances of this City. (1948 C., Ch. 2, § 47; 1960 C., § 15.010; 1994 C., § 3.18.010.)

Charter:

Art. IV § 21 Ordinances to be numbered and published

Art. VIII § 1 Appointment of register

Art. VIII § 3 Oaths of officers and employees to be filed with register

Art. IX Register—powers and duties

RSMo:

RSMo Ch. 51 (2016) County clerks

Cases:

It is the duty of the register to perform the duties of a county clerk in respect to the general laws of the state. *State v. Tracy,* 6 S.W. 709 (1888).

Ops. Atty. Gen.:

The register of the city of St. Louis is authorized to perform the duties of county clerk. No. 125, January 18, 1966.

3.18.020 Duty to procure and issue license plates, tags, and forms, permits and certificates.

All metallic license plates and tags and all blank licenses, tickets, receipts, permits, certificates or other blank forms as may be provided for by ordinance shall be procured by the Register by his requisition on the supply division and shall be attested and issued by the

Register and on the requisition of the Comptroller delivered and charged to the Comptroller, who shall countersign and deliver them to the proper officers and receipt therefor. All blanks, plates or tags not used shall be returned to the Comptroller, who shall cancel and return them to the Register. (1948 C., Ch. 2, § 48; 1960 C., § 15.020; 1994 C., § 3.18.020.)

3.18.030 Appointment of deputy registers, storekeeper and stenographer-clerk.

The Register shall appoint a First Deputy Register, a Second Deputy Register, one storekeeper and one stenographer-clerk. They shall perform duties as the Register may direct. In the absence of the Register, the First Deputy Register shall perform the duties of Register. The Register or surety on his official bond shall be responsible for the official acts of the First and Second Deputy Registers. (1948 C., Ch. 2, § 49; 1960 C., § 15.030; 1994 C., § 3.18.030.)

3.18.040 Bond.

The Register shall give bond to the City for the faithful performance of his official duties in the sum of ten thousand dollars.

The official bond of the Register shall be deposited with the Comptroller for safekeeping. (1948 C., Ch. 2, § 50; 1960 C., § 15.040; 1994 C., § 3.18.040.)

City Counselor Ops. 10488

3.18.050 Fees for certified copies furnished by Register.

The Register shall charge all persons, except members of the Board of Aldermen and City officers, for certified copies of ordinances, records or other papers on file in his office the fee established by law for such ordinance, record or paper and for his certificate thereto under seal an additional fee of one dollar. For such fees he shall issue receipts in duplicate, one of which shall be filed with the Comptroller and the other shall be handed to the person making the payment. (1948 C., Ch. 2, § 51; 1960 C., § 15.050; 1994 C., § 3.18.050; Ord. No. 58443, § 1, 1981.)

3.18.060 Authority of Register to loan official documents—Receipt.

The Register is authorized to loan official or contract bonds, contracts, or other official documents of which he is custodian, to City officers for their convenience in the performance of their duties or because of legal necessity, upon receipt therefor by the City officers or their authorized deputies. The City officers shall be responsible for the document so receipted for pending the return of the same to the Register. (1948 C., Ch. 2, § 52; 1960 C., § 15.060; 1994 C., § 3.18.060.)

Chapter 3.20

RECORDER OF DEEDS

For employees salaries, see Ch. 4.34.

City Counselor Ops.: 8178

Sections:

3.20.010 Bond.

3.20.020 Powers and duties generally—Records—Office rules.

3.20.030 Collecting and paying over fees.

3.20.040 Supplies.

3.20.050 Record rooms to have call boxes.

3.20.060 French and Spanish archives to be kept in Jefferson Memorial Building.

3.20.070 Fees payable by credit card or debit card.

3.20.080 Requirements for deeds.

3.20.010 Bond.

Before the Recorder of Deeds shall enter upon the duties of his office he shall give bond to the State of Missouri in the sum of five thousand dollars, conditioned for the faithful performance of the duties of his office. The bond shall be approved by the Comptroller. (1948 C., Ch. 2, § 53; 1960 C., § 17.010; 1994 C., § 3.20.010.)

3.20.020 Powers and duties generally—Records—Office rules.

The recorder shall have charge and control of the real estate records and personalty records of the City, and all papers, maps, plats and other records pertaining to his office as established by law and may enforce all needful regulations for their care, use and management not inconsistent with the laws of the state. No record shall be removed from the office except with the approval of the recorder or upon the formal order of some court, and all improper interference with the records, misuse of same, or making any alteration, erasure, interlineation or other writing of any kind thereon without the consent and approval of the recorder shall be considered a violation of this section and punishable as such. The use of pen and ink in the office except by the recorder and deputies and clerks under his supervision is forbidden, except with the

knowledge and consent of the recorder. All loud talking or other disturbance in the office during business hours is also forbidden. (1948 C., Ch. 2, § 54; 1960 C., § 17.020; 1994 C., § 3.20.020.)

Charter:

Art. XV § 18 Abstracts to be delivered by recorder of deeds

Art. XXI § 1(c) Petition to be filed with recorder of deeds describing property to be taken in connection with eminent domain

RSMo:

RSMo 59.010—59.320 (2016) Recorder—generally

RSMo 59.330—59.660 (2016) Records

3.20.030 Collecting and paying over fees.

The Recorder of Deeds shall collect all fees as prescribed by law and pay the same into the City Treasury daily. (1948 C., Ch. 2, § 55; 1960 C., § 17.030; 1994 C., § 3.20.030.)

RSMo:

RSMo 59.313 (2016) Fees

3.20.040 Supplies.

The books, stationery and furniture necessary for the office of the Recorder of Deeds shall be supplied as prescribed in the Charter and City ordinances for other departments. (1948 C., Ch. 2, § 56; 1960 C., § 17.040; 1994 C., § 3.20.040.)

3.20.050 Record rooms to have call boxes.

In each room in which records are kept there shall be installed and maintained an electrical watchman's call box, and the night watchman shall make a watchman's call thereon once each hour. (1948 C., Ch. 2, § 57; 1960 C., § 17.050; 1994 C., § 3.20.050.)

3.20.060 French and Spanish archives to be kept in Jefferson Memorial Building.

The Recorder of Deeds is authorized and directed to place the papers, known as the French and Spanish archives, for safekeeping with the Missouri Historical Society in the Jefferson Memorial Building in Forest Park, where the papers shall be so arranged and kept as to be open to inspection by the public under reasonable rules and regulations as may be necessary to insure their preservation. (1948 C., Ch. 2, § 58; 1960 C., § 17.060; 1994 C., § 3.20.060.)

3.20.070 Fees payable by credit card or debit card.

The Recorder of Deeds is authorized to receive payment by credit card or debit card for fees imposed by law and to recover all administrative costs connected to these transactions and convenience fees imposed by the credit card service under contract to process such payments. (1994 C., § 3.20.070; Ord. No. 69505, § 1, 7-11-2013.)

3.20.080 Requirements for deeds.

In addition to all other requirements prescribed by law, all deeds or other conveyances of lands situated in the City, or of any estate or interest therein, including all warranty deeds (general or special), quitclaim deeds, and deeds of trust, but excluding all easements and rights-of-way:

A. Shall contain the residence address of the grantor; and

B. Shall by subscribed by all of the grantees thereof (excluding, in the case of deeds of trust, all lenders and trustees), or by their lawful agents, which subscription shall be acknowledged or proved and certified, all in the same manner as is prescribed by law for the subscription by the grantor and the acknowledgement or proof and certification thereof. Where a deed conveys a life estate and a remainder, only, the subscription of the life tenant shall be required. Where a deed is issued by the Sheriff of the City of St. Louis pursuant to a court order in a land tax matter, no grantee subscription shall be required. (Ord. No. 70820, § 1, 10-11-2018)

Chapter 3.22

CORONER

Editor's Note:

RSMo 58.700 through 58.765 (1975 Cumm. Supp.) provide for the replacement of the office of coroner for the city of St. Louis by the office of medical examiner at the end of the current term of office, i.e. January 1, 1977. The validity of these statutes was upheld in *State ex rel. McClellan v. Godfrey,* 519 S.W. 2d 4 (Mo. 1975).

Morgue, see Ch. 11.48 Part VI

Salaries, see Ch. 4.42

RSMo:

RSMo Ch. 58. Coroners and inquests

Ops. Atty. Gen:

When the office of the coroner of the city becomes vacant it is the duty of the governor to appoint a successor who shall serve until the end of the four year term to which the one vacating the office was elected. No. 46, April 27, 1960.

City Counselor Ops.: 8178

Sections:

3.22.010 Bond.

3.22.020 Inquests and deaths to be reported.
3.22.030 Method of paying expenses of inquests.
3.22.040 Post-mortem fees.
3.22.050 Statement of fees to be filed.
3.22.060 Deputies.
3.22.070 Reporter—Appointment.
3.22.080 Reporter—Duties—Fees.
3.22.090 Stenographers.
3.22.100 Compensation for bringing dead body to shore.

3.22.010 Bond.

Before the Coroner shall enter upon the duties of his office he shall give bond to the State of Missouri in the sum of ten thousand dollars. (1948 C., Ch. 2, § 127; 1960 C., § 18.010; 1994 C., § 3.22.010.)

3.22.020 Inquests and deaths to be reported.

It shall be the duty of the Coroner to report weekly all inquests, and all deaths coming within his official knowledge, to the Health Commissioner. (1948 C., Ch. 2, § 128; 1960 C., § 18.020; 1994 C., § 3.22.020.)

City Counselor Ops.: 9009

Cases:

The law invests the coroner with no authority to have an autopsy performed except in connection with an inquest. *Crenshaw v. O'Connel,* 235 Mo. App. 1085, 150 S.W. 2d 489 (1941).

3.22.030 Method of paying expenses of inquests.

The Coroner shall present to the Comptroller a certified statement of all the costs and expenses for the inquest, including the fees of jurors, witnesses and others entitled to fees for which the City is liable. He shall give to each person a certificate of the amount of fees due him in each case, and the Comptroller shall cause the certificate to be audited without delay and shall draw a warrant in favor of any person to whom any fees, costs or expenses are due. The fees, costs or expenses shall be paid by the Treasurer to the person upon his order in writing endorsed on the warrant. (1948 C., Ch. 2, § 129; 1960 C., § 18.030; 1994 C., § 3.22.030.)

3.22.040 Post-mortem fees.

When a physician or surgeon shall be called on by the Coroner to conduct a postmortem examination, the Mayor shall be authorized to allow the physician or surgeon a fee not exceeding twenty-five dollars, which shall be paid out of the Treasury in the usual manner. (1948 C., Ch. 2, § 130; 1960 C., § 18.040; 1994 C., § 3.22.040.)

3.22.050 Statement of fees to be filed.

The Coroner and his deputy shall, at the end of every month, file in the Comptroller's Office a detailed statement, verified by affidavits, of all fees collected or received by them, respectively, during the month and shall pay the amount thereof into the City Treasury, taking duplicate receipts, one of which shall be filed with the Comptroller. (1948 C., Ch. 2, § 131; 1960 C., § 18.050; 1994 C., § 3.22.050.)

3.22.060 Deputies.

The Coroner may appoint two deputies and one clerk. The deputies shall take the same oath, possess the same powers and perform the same duties as the Coroner. The Coroner shall be responsible for all the official acts of his employees. (1948 C., Ch. 2, § 132; 1960 C., § 18.060; 1994 C., § 3.22.060.)

3.22.070 Reporter—Appointment.

The Coroner shall appoint a shorthand reporter who shall hold office at the pleasure of the Coroner. (1948 C., Ch. 2, § 134(part); 1960 C., § 18.070(part); 1994 C., § 3.22.070.)

3.22.080 Reporter—Duties—Fees.

It shall be the duty of the shorthand reporter:

A. To take all testimony at inquests when and where the Coroner requests him so to do;

B. To furnish typewritten transcripts of such testimony for the use of the Coroner's Office and the courts in which they may be needed;

C. To do other shorthand work as may be required by the Coroner;

D. To furnish certified copies of testimony so taken upon the order of the Coroner to any citizen who may ask it, upon payment for such copies at a rate of not more than fifteen cents for one hundred words.

The fee charged for certified copies of testimony shall be collected by the Coroner, who shall at the end of each month render to the Comptroller a correct account of collections, and shall at the same time pay to the Treasurer the amount collected during the preceding month. (1948 C., Ch. 2, § 135; 1960 C., § 18.070(part); 1994 C., § 3.22.080.)

3.22.090 Stenographers.

The Coroner is authorized to employ two assistant stenographers. (1948 C., Ch. 2, § 136; 1994 C., § 3.22.090.)

3.22.100 Compensation for bringing dead body to shore.

If a dead body is found floating in the river the Coroner may, in his discretion, pay to some person for bringing it to the shore a sum not exceeding two dollars, which shall be allowed him by the Mayor and paid in the usual manner. (1948 C., Ch. 2, § 137; 1960 C., § 18.080; 1994 C., § 3.22.100.)

Chapter 3.24

FIRE DEPARTMENT

Sections:

Part I. General Provisions

3.24.010 Composition.
3.24.020 Selection of officers.
3.24.030 Duties of assistants—Subordinate officers to perform duties of Chief in his absence.
3.24.040 Chief's powers and duties generally.
3.24.050 Secretary's duties.
3.24.060 Police power of Chief and assistants.
3.24.070 Hours of service.
3.24.080 Firemen at City institutions.
3.24.090 Office of the Fire Chief in City Hall.
3.24.100 Inspection of buildings or premises.
3.24.110 Drill required.
3.24.120 Payment of salary during job related injury or sickness.
3.24.130 Drillmaster to be provided.
3.24.140 Uniforms.
3.24.150 Use of fire apparatus outside of City.

Part II. Bureau of Fire Prevention

3.24.200 Established—Under supervision of Chief of Fire Department.
3.24.210 Fire Marshal and assistant.
3.24.220 Personnel—Detailed from Fire Department.
3.24.230 Personnel—Qualifications.
3.24.240 Powers and duties of Chief of Fire Department and Fire Marshal.
3.24.250 Manual of instructions.
3.24.260 Inspections for fire hazards.
3.24.270 Service of order issued for purpose of securing compliance.
3.24.280 Penalty for violation of Part II.

Part III. Fire Alarm System

3.24.330 Signal of alarm of fire.
3.24.340 Rules and directions for signaling alarms of fire.
3.24.350 Management and control of system.
3.24.360 Chief Electrical Engineer—Appointment—Powers and duties generally.
3.24.370 Chief Electrical Engineer—Bond.
3.24.380 Chief Electrical Engineer—Use of vehicles.
3.24.390 Repair of damaged equipment.
3.24.400 Right of entry for repairs—Refusal of admittance—Tampering with or damaging property.
3.24.410 Erection and maintenance of poles for use of City.
3.24.420 Conduits and manholes.
3.24.430 Records to be kept.
3.24.440 Installation of fire alarm and auxiliary boxes.

Part IV. Legal Defense of Firemen

3.24.490 City Counselor to defend firemen—Judgments against firemen.

Part V. Arson Investigation Detail

3.24.550 Established.
3.24.560 Membership—Appointments.
3.24.570 Powers—Training requirement.
3.24.580 Training program.
3.24.590 Equipment to be provided.
3.24.600 Office equipment and administrative employees.
3.24.610 Purpose and duties.
3.24.620 Written reports required.

Part VI. Mutual Fire Protection Services

3.24.670 Contract for services—Generally.

3.24.680 Mutual aid agreement—Scope of response.

3.24.690 Mutual aid agreement—Termination.

3.24.700 Execution of agreement.

3.24.710 Consideration for service.

3.24.720 Nonliability for failure to respond.

3.24.730 Nonliability by participants to other than regular employees.

3.24.740 Equipment loss or damage—Liability.

3.24.750 Mutual aid participants subject to local laws and ordinances.

3.24.760 Functions of mutual aid—Notifying party to be in command.

3.24.770 Understanding of mutual aid agreements.

PART I. GENERAL PROVISIONS

3.24.010 Composition.

The Fire Department shall consist of a Chief, a First Deputy Chief, a Second Deputy Chief and the number of Battalion Chiefs and other officers, employees and firemen as may be fixed by the Board of Aldermen from time to time. (1948 C., Ch. 24, § 1; 1960 C., § 330.010; 1994 C., § 3.24.010.)

For firemen's retirement system, see Ch. 4.18

Charter:

Art. I § 1(20) Authority of city to provide and maintain a fire department

Art XIII § 15(c) Divisions of fire and fire prevention

Art. XVIII § 31 Compensation of employees of fire department

Cases:

Charter amendment providing that salaries of firemen shall be not less than those of corresponding ranks of policemen held constitutional *State v. Stemmler,* 479 S.W. 2d 456 (1972).

McQuillin:

45.02 Fire department

3.24.020 Selection of officers.

The Chief of the Fire Department and the First Deputy and Second Deputy Chief, shall not be taken from the rank below the rank of Battalion Chief. When any vacancies take place in any grade of officers, they shall be filled from the next lowest grade, provided:

A. Privates shall serve at least five years as such before being promoted to the rank of Lieutenant;

B. Lieutenants shall serve at least two years as such before being promoted to the rank of Captain;

C. Captains shall serve at least three years as such before being promoted to the rank of Battalion Chief;

D. Battalion chiefs shall serve at least one year as such before being promoted to the rank of chief or First or Second Deputy Chief;

E. In no case shall the Chief of the Fire Department, or the First and Second Deputy Chief, be selected from men who are not members of the Fire Department of the City or below the grade of Battalion Chief. (1948 C., Ch. 24, § 2; 1960 C., § 330.020; 1994 C., § 3.24.020.)

For bond of chief of the fire department, see § 3.26.010

3.24.030 Duties of assistants—Subordinate officers to perform duties of Chief in his absence.

The Deputy Chiefs and Battalion Chiefs of the Fire Department shall discharge duties as prescribed by the Chief of the Fire Department. In case of the absence or inability of the Chief to act, the duties of the Chief of the Fire Department shall be performed by the First Deputy Chief, and in case of the absence or inability of the Chief and First Deputy Chief, the duties of the Chief of the Fire Department shall be performed by the Second Deputy Chief. (1948 C., Ch. 24, § 3; 1960 C., § 330.030; 1994 C., § 3.24.030.)

3.24.040 Chief's powers and duties generally.

The Chief of the Fire Department shall have the superintendence and control of all engines and engine houses, hose carriages, and fire and life saving apparatus of every kind belonging to the City. The Chief shall, with the approval of the Director of Public Safety, make rules for the regulation of the Fire Department as may be necessary. The Chief shall, when he deems it expedient, recommend to the Comptroller the sale or other disposition of vehicles and equipment or any fire or life saving apparatus belonging to the City which may be unserviceable or not in use. Proceeds of such sales shall be paid by the Comptroller into the City Treasury, and the Treasurer shall give the Comptroller duplicate receipts, one of which shall be filed in the Comptroller's Office and the other to be given by the Comptroller to the Chief. The Chief shall recommend to the Supply Commissioner the purchase of supplies regularly necessary for the Department and, to the extent as appropriation may be made therefor by ordinance, the purchase of engines and other apparatus for

the extinguishment of fires and for saving lives. The Chief shall take into consideration and report all matters relating to the Fire Department and to the property of the City connected therewith. In his annual report he shall set forth a list of the fires in the City for the preceding year, the number of false alarms, the estimated amount of property destroyed, other statistics in relation to losses and insurance and the causes of fires as he may be able to procure, and other information and suggestions in relation to the Fire Department as he may deem expedient or necessary.

All disputes and controversies arising in relation to any matter connected with the Fire Department among any of its companies, officers or members when on duty shall be summarily decided by the Chief, or, in his absence, by the officer in command. He shall attend all fires that occur in the City as far as practicable, and all orders given by him to any company of firemen shall be promptly obeyed. It shall be his special duty to see that the provisions of this chapter and all ordinances relating to the Department are regularly and strictly enforced. (1948 C., Ch. 24, § 4; 1960 C., § 330.040; 1994 C., § 3.24.040.)

City Counselor Ops.: 8677, 9117

Cases:

The fire chief has discretion in filling vacancies in the ranks of the fire department and may not be compelled to do so by writ of mandamus at the suit of a candidate for promotion. *State ex rel. Killingsworth v. George,* 168 S.W.3d 621 (Mo.App.E.D. 2005).

The discretion conferred upon division-level appointing authorities under civil service rules does not supersede the mayor's chief executive authority under article VII § 1 of the City charter, and the authority of the director of public safety as the fire chief's immediate supervisor under article XIII of the charter, to direct the fire chief to perform his duty to fill vacancies in the fire department. The fire chief was properly demoted for refusing the order. *George v. Civil Service Comm.,* 318 S.W.3d 266 (Mo.App.E.D. 2010).

3.24.050 Secretary's duties.

The Secretary of the Fire Department shall have charge of all books and records of the Department. He shall keep a correct and separate account, with each engine and truck company of the Department, of all expenses and repairs belonging thereto and shall discharge other duties as may be prescribed by the Chief. He shall prepare all payrolls of the Department, which, when approved by the Chief, he shall transmit to the Comptroller, who shall draw his warrant for same and charge it to the appropriation for Fire Department. (1948 C., Ch. 24, § 5; 1960 C., § 330.050; 1994 C., § 3.24.050.)

3.24.060 Police power of Chief and assistants.

The Chief and assistants shall have the same police powers at all fires as the Chief of Police, and may command assistance from the inhabitants of the City for the suppression or extinguishing of fires as may be required. They shall have power to order any company, fireman or other person away from the neighborhood of a fire. Any person refusing to comply with such order shall be guilty of a misdemeanor. (1948 C., Ch. 24, § 6; 1960 C., § 330.060; 1994 C., § 3.24.060.)

3.24.070 Hours of service.

The hours of service for privates, lieutenants, captains and battalion chiefs in the Fire Department shall run continuously for twenty-four hours from nine a.m. to nine a.m. on alternate days, subject to special dispensation granted in the discretion of the Chief. The hours of service for watchmen shall be from seven p.m. to six a.m. except on every fifth night, when they shall be relieved of duty for that night, and except in the case of institutional watchmen, who shall work twelve hours every day. (1948 C., Ch. 24, § 7; 1960 C., § 330.070; 1994 C., § 3.24.070.)

3.24.080 Firemen at City institutions.

Firemen detailed at City institutions shall guard against the dangers of fire at such institutions and shall be prepared in the event of fire to combat that fire with the assistance of the employees of the institution, until the arrival of the proper detail of the Fire Department. It shall be their duty to drill the employees of the City institutions from time to time and to instruct them as to their respective duties in case of fire. (1948 C., Ch. 24, § 8; 1960 C., § 330.080; 1994 C., § 3.24.080.)

3.24.090 Office of the Fire Chief in City Hall.

The office of the Chief shall be in the City Hall. (1948 C., Ch. 24, § 9; 1960 C., § 330.090; 1994 C., § 3.24.090.)

3.24.100 Inspection of buildings or premises.

The Chief, or his assistants, may inspect any building or premises between the hours of nine a.m. and six p.m. or any other hour when an emergency may arise. Any person who shall refuse, prevent or attempt to prevent the Chief, his assistants or duly authorized agent from entering any building or premises, shall be

guilty of a misdemeanor. (1948 C., Ch. 24, § 10; 1960 C., § 330. 100; 1994 C., § 3.24.100.)

3.24.110 Drill required.

It is the duty of the Chief to cause the men to be drilled in their duties at least once each week and more often if necessary. (1948 C., Ch. 24, § 11; 1960 C., § 330.110; 1994 C., § 3.24.110.)

3.24.120 Payment of salary during job related injury or sickness.

In case any member of the Fire Department is prevented by injury or sickness caused by his service in the Department from performing his duty he shall receive the salary and compensation allowed him by law during the disability and sickness; provided, he produces the certificate of the Chief and the assistant in charge of the district in which the member is employed that he is unable to work from injury or sickness. No compensation shall be allowed unless approved by the Director of Public Safety and payment shall not continue longer than a period of six months. (1948 C., Ch. 24, § 12; 1960 C., § 330.120; 1994 C., § 3.24.120.)

3.24.130 Drillmaster to be provided.

The Chief shall at all times provide for one person of each company to act as the drillmaster of his company, who shall take the lead at drills and fires in the absence of the instructor. (1948 C., Ch. 24, § 13; 1960 C., § 330.130; 1994 C., § 3.24.130.)

3.24.140 Uniforms.

Every member of the Fire Department shall at all fires wear a fire hat, according to his rank or position, and at all times when on duty wear a shirt of uniform color, with a badge by which he can be distinguished as a member of the St. Louis Fire Department. The articles enumerated in this section shall be furnished by the members of the Fire Department at their own cost and expense. (1948 C., Ch. 24, § 14; 1960 C., § 330.140; 1994 C., § 3.24.140.)

3.24.150 Use of fire apparatus outside of City.

Any city, town or village desiring to use any fire apparatus of the City shall first obtain the consent of the Director of Public Safety or the Mayor for the use of City fire apparatus, and such city, town or village shall pay fees as the Director of Public Safety shall determine. All money so received shall be paid to the Director of Public Safety, who in turn shall transmit the money to the City Treasury. (1948 C., Ch. 24, § 17; 1960 C., Ch. 333; 1994 C., § 3.24.150.)

RSMo:

RSMo 71.370 et seq. (2016) Contracts between cities for fire protection and joint fire departments

PART II. BUREAU OF FIRE PREVENTION

3.24.200 Established—Under supervision of Chief of Fire Department.

A Bureau of Fire Prevention is established in the Fire Department. The Bureau shall be operated under the supervision of the Chief of the Fire Department. (1948 C., Ch. 24, § 19; 1960 C., § 331.010; 1994 C., § 3.24.200.)

3.24.210 Fire Marshal and assistant.

The Bureau of Fire Prevention shall include a chief executive officer to be designated Fire Marshal, and an assistant executive officer to be designated Assistant Fire Marshal. In the absence of the Fire Marshal, the assistant Fire Marshal shall act in his stead in the exercise of all powers and duties otherwise residing in and delegated to the Fire Marshal. (1948 C., Ch. 24, § 20; 1960 C., § 331.020; 1994 C., § 3.24.210.)

3.24.220 Personnel—Detailed from Fire Department.

The Chief of the Fire Department shall detail, to the Bureau of Fire Prevention, an officer of the Fire Department to be designated Fire Marshal, another officer of the Fire Department to be designated assistant Fire Marshal, and, in addition, other officers and men, members of the Fire Department, as may be required. Other than the Fire Marshal and the Assistant Fire Marshal, the officers and men detailed to the Bureau of Fire Prevention shall be designated as inspectors. (1948 C., Ch. 24, § 21; 1960 C., § 331.030; 1994 C., § 3.24.220.)

3.24.230 Personnel—Qualifications.

The Fire Marshal, the Assistant Fire Marshal and the inspectors shall be especially qualified in fire hazards and fire prevention. (1948 C., Ch. 24, § 22; 1960 C., § 331.040; 1994 C., § 3.24.230.)

3.24.240 Powers and duties of Chief of Fire Department and Fire Marshal.

It shall be the duty of the Chief of the Fire Department and the Fire Marshal to take all proper steps for fire prevention. They are empowered and authorized at all reasonable hours to enter upon and into, or cause to

be entered upon and into, any premises, building or structure within the City for the purpose of examination and inspection. Whenever they find in any premises, building or structure any condition which is especially liable to cause fire because of the presence or arrangement of any device, machinery or process, or because of the presence, arrangements or deposits of any articles, materials, substances, goods, wares or merchandise which may have a tendency to create danger of or from fire in or on any premises, building or structure, or to create danger in case of fire on or in any premises, building or structure, or personal injury to or loss of life of the occupants or persons on or in any premises, building or structure, or to endanger other premises, buildings or structures or the occupants thereof, or find conditions which would interfere with the efficiency and use of any and all appliances for protection against fire in any premises, building or structure, or find obstructions to or on fire escapes, stairs, passageways, doors or windows liable to interfere with the operations of the Fire Department or egress of occupants in case of fire, they shall order the same to be removed or remedied and the order shall forthwith be complied with by the owner or occupant of any premises, building or structure.

They shall investigate fires to determine the cause, origin and circumstances thereof, and in so doing shall have the power to issue subpoenas and all necessary processes for the attendance of witnesses and the production of books and papers and shall have the power to administer oaths and take testimony. The City Marshal shall execute processes as may be issued as provided. The Chief of the Fire Department and the Fire Marshal shall have other powers and duties as are set forth in this chapter and other ordinances.

All vehicles owned or assigned to the Fire Department, that are used in service by the Department, except passenger vehicles at the disposal of command personnel, shall be equipped with oxygen equipment that may be immediately put in service to resuscitate victims, upon said vehicles arrival at the scene of an accident or incident to which said fire vehicle has been dispatched. (1948 C., Ch. 24, § 23; 1960 C., § 331.050; 1994 C., § 3.24.240; Ord. No. 60281, § 1, 1987.)

As to inspection of buildings and premises, see Section 3.24.100

City Counselor Ops.: 8367, 8539, 10005

3.24.250 Manual of instructions.

The Chief of the Fire Department shall prepare a manual of instructions for the Fire Marshal, the Assistant Fire Marshal and inspectors, including forms for their use in preparing reports and orders. (1948 C., Ch. 24, § 24; 1960 C., § 331.060; 1994 C., § 3.24.250.)

3.24.260 Inspections for fire hazards.

The Chief of the Fire Department, for the purposes of this chapter, shall require that members of the fire companies in their respective districts make regular inspection, as may be ordered by him, or other inspections as may be prescribed by ordinance, of buildings and premises in their respective districts for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire. Reports of these inspections are to be filed with the Bureau of Fire Prevention on forms as prescribed by the Chief of the Fire Department, with the hazardous conditions noted. The Fire Marshal or the Assistant Fire Marshal or inspectors, at his direction, shall follow up all inspections as are reported in which hazardous conditions are found to secure their removal or corrections. (1948 C., Ch. 24, § 25; 1960 C., § 331.070; 1994 C., § 3.24.260.)

Charter:

Article I § 1(29) Authority of city to impact buildings, etc., for safety

3.24.270 Service of order issued for purpose of securing compliance.

The service of any order issued for securing compliance with the provisions of this chapter, or for compliance with the provisions of other ordinances relating to fire hazards, unless the methods of issuing service is specifically provided for in other ordinances, may be made upon the owner or occupant of the premises to whom it is directed, either by delivering a copy of the order to the owner or occupant personally or by delivering the order to and leaving it with any person in charge of the premises, or in case no such person is found upon the premises, by affixing a copy of the order in a conspicuous place on the door to the entrance of the premises. Whenever it may be necessary to serve an order upon the owner of the premises, the order may be served either by delivering to and leaving with the person a copy of the order, or, if the owner is absent from the jurisdiction, by mailing the copy to the owner's last known post office address. (1948 C., Ch. 24, § 26; 1960 C., § 331.080; 1994 C., § 3.24.270.)

3.24.280 Penalty for violation of Part II.

Any person violating any of the provisions of Part II or neglecting to comply with any order issued pursu-

ant to any section thereof, unless the violation is otherwise provided for by law or ordinance, shall be guilty of a misdemeanor, and upon conviction shall forfeit and pay a fine of not more than twenty-five dollars ($25.00) for each offense, and in addition, a fine of not more than twenty-five dollars ($25.00) for each day the violation is permitted to exist beyond a reasonable period of service, and in default of payment shall be imprisoned not to exceed thirty (30) days for each offense. (1948 C., Ch. 24, § 27; 1994 C., § 3.24.280.)

PART III. FIRE ALARM SYSTEM

3.24.330 Signal of alarm of fire.

All alarms of fire shall be signaled to the proper department of the City by means of the fire alarm telegraph system of the City. The central station or office of the fire alarm telegraph system shall be located in the City Hall until otherwise directed by the Board of Aldermen or Mayor. (1948 C., Ch. 24, § 28; 1960 C., § 332.010; 1994 C., § 3.24.330.)

3.24.340 Rules and directions for signaling alarms of fire.

The Chief Electrical Engineer, with the approval of the Chief of the Fire Department, shall adopt rules and directions for signaling alarms of fire to the various departments of the City not provided for in Part III, and have the power to alter and change the same from time to time. All rules, regulations and changes shall be binding upon all persons connected with such department and the fire and police telegraph and telephone section, after a copy of the rules, regulations and changes has been placed on file in the office of the Chief of the Fire Department and the City Register and published in the same manner as ordinances of the City are published. The Board of Aldermen shall at all times have the power to alter, amend or annul the rules, regulations and changes. (1948 C., Ch. 24, § 29; 1960 C., § 332.020; 1994 C., § 3.24.340.)

McQuillin:

24.463 Requirement of alarms or systems

3.24.350 Management and control of system.

The fire and police telegraph and telephone section of the Division of Fire and Fire Prevention shall manage, control and conduct the fire and police telegraph and telephone system, including the entire care and management of rooms, apparatus, poles, conduits, line wire, cables, signal stations and all appurtenances and equipment necessary for the transmission of all alarms of fire to the fire service of the City and for the operation of the municipal telephone system, including telephone and signal stations as may be necessary for the efficient operation of the metropolitan police. (1948 C., Ch. 24, § 30; 1960 C., § 332.030; 1994 C., § 3.24.350.)

City Counselor Ops.: 9555, 9584

McQuillin:

34.116 Use of telephone poles for alarm systems

3.24.360 Chief Electrical Engineer—Appointment—Powers and duties generally.

The head of the fire and police telegraph and telephone section of the Division of Fire and Fire Prevention shall be known as the Chief Electrical Engineer of the fire and police telegraph and telephone system, and shall be appointed by the Chief of the Fire Department. The Chief Electrical Engineer shall control and direct the employees and equipment of the section and make alterations in the equipment and additions thereto and changes in the duties of the employees as may seem best to him for the operation or improvement of the section. (1948 C., Ch. 24, § 31; 1960 C., § 332.040; 1994 C., § 3.24.360.)

City Counselor Ops.: 9555

3.24.370 Chief Electrical Engineer—Bond.

The Chief Electrical Engineer shall give bond to the City in the sum of five thousand dollars ($5,000.00). (1948 C., Ch. 24, § 32; 1960 C., § 332.050; 1994 C., § 3.24.370.)

3.24.380 Chief Electrical Engineer—Use of vehicles.

The Chief Electrical Engineer of the fire and police telegraph and telephone system shall have the entire use and control of automobiles and vehicles as may be necessary to carry on the work of the fire and police telegraph and telephone section. (1948 C., Ch. 14, § 33; 1960 C., § 332.060; 1994 C., § 3.24.380.)

3.24.390 Repair of damaged equipment.

In case of damage or destruction or impairment to the property of the fire and police telegraph and telephone section by storms, lightning, fire or unforeseen causes. which damage cannot be properly repaired by the section without exceeding the annual appropriation to the section, it shall be the duty of the chief electrical engineer of the fire and police telegraph and telephone

system to have the damage be repaired in the shortest possible time. The chief electrical engineer of the fire and police telegraph and telephone system may, with the approval of the Chief of the Fire Department, employ extra labor and purchase supplies as he may deem necessary to expedite the making of the repairs. (1948 C., Ch. 24, § 34; 1960 C., § 332.070; 1994 C., § 3.24.390.)

3.24.400 Right of entry for repairs—Refusal of admittance—Tampering with or damaging property.

The chief electrical engineer of the fire and police telegraph and telephone system or any employees shall have the right to enter any premises wherein may be located any fire alarm wires or apparatus at any time it may be necessary to test, repair or otherwise work upon same. In case of damage or destruction or any impairment to wires, poles or any property or devices upon which wires of the fire and police telegraph and telephone system may be caused by storms, lightning, fire or other unforeseen causes, the chief electrical engineer of the fire and police telegraph and telephone system and any employees may enter upon any private property and lay, place, attach or string wires or devices over or upon any private property, premises or buildings until such time as the damage may be repaired. Any person who obstructs, interferes with or refuses admittance to the officer or employees, or any person tampering with or damaging any of the property of the fire and police telegraph and telephone system, or attempting to interfere with the proper working of any part of the fire and police telegraph and telephone system, shall be guilty of a misdemeanor. This section shall not be construed as to invalidate or render void in any degree, any ordinance relating to the conviction and punishment for sending of a false alarm of fire from a fire alarm box or signal station to the Fire Department. (1948 C., Ch. 24, § 35; 1960 C., §§ 332.080, 332.090; 1994 C., § 3.24.400.)

3.24.410 Erection and maintenance of poles for use of City.

The chief electrical engineer of the fire and police telegraph and telephone system is authorized to erect and maintain a line of poles for the use of the City in the interest of the fire and police telegraph and telephone system upon any street of the City and shall have the power to excavate for the same. The poles shall be set in the sidewalk and within one foot of the outer margin of the sidewalk. The setting of poles shall not violate ordinances in that relation as applied to, or under, the Department of Streets. (1948 C., Ch. 24, § 36; 1960 C., § 332.100; 1994 C., § 3.24.410.)

3.24.420 Conduits and manholes.

The chief electrical engineer of the fire and police telegraph and telephone system is authorized to alter, repair or install conduits, laterals and appurtenances to conduits and manholes in which there are ducts and cables for the fire and police telegraph and telephone system whenever necessary for the proper and efficient working, the maintenance or improvement of the underground service of the fire and police telegraph and telephone system under the general supervision of the Board of Public Service. The cost of all such work shall be paid out of the funds that may be annually appropriated for the purpose. Any necessary repairs made on ducts, conduits or appurtenances required to be made by the company installing the same shall be paid for by the company so obligated. (1948 C., Ch. 24, § 37; 1960 C., § 332.110; 1994 C., § 3.24.420.)

3.24.430 Records to be kept.

The chief electrical engineer of the fire and police telegraph and telephone system shall keep a record of all his official transactions and a correct systematic account of all moneys, both receipts and expenditures. He shall keep an inventory of all tools and other materials, on hand, and shall also cause to be made by the operators on duty, a correct record of the exact time, date and number of station from whence alarms of fire are received. (1948 C., Ch. 24, § 38; 1960 C., § 332.120; 1994 C., § 3.24.430.)

3.24.440 Installation of fire alarm and auxiliary boxes.

Fire alarm boxes installed on the City's fire alarm and police telegraph system of wires, shall be placed so they are accessible to the inspectors of the fire and police telegraph and telephone division of the Department of Public Safety at all hours of the day or night. In the event the fire alarm box cannot be placed to comply with this section, the owners or proprietors of theaters or other places where direct communication with the fire alarm telegraph system is deemed necessary shall provide a master box outside the premises and one or more auxiliary boxes at suitable places within the risk protected and these shall be installed at the owners' or proprietors' expense. The design and quality of the

master box and auxiliary box shall be in accordance with the requirements of the chief electrical engineer of the fire and police telegraph and telephone division, under whose supervision the master box wiring and auxiliary boxes shall be installed. (1948 C., Ch. 24, § 39; 1960 C., § 332.130; 1994 C., § 3.24.440.)

PART IV. LEGAL DEFENSE OF FIREMEN

3.24.490 City Counselor to defend firemen—Judgments against firemen.

The City Counselor, pursuant to RSMo 536.163 (1957), is required and directed to defend, in the name of and on behalf of the members of the Fire Department, any action brought against members of the Fire Department involving claims for death or injury to persons or property arising out of their operation of motor vehicles for the Fire Department in the performance of their duties. No judgment, or liability for court costs, obtained against any member of the Fire Department in any such action, shall be a liability of the City. (1960 C. 334.010; 1994 C., § 3.24.490; Ord. No. 48753, § 1, 1958.)

PART V. ARSON INVESTIGATION DETAIL

3.24.550 Established.

There shall be established for one year from the effective date of the ordinance codified in this part, unless continued by further ordinance, within the Bureau of Fire Prevention, a new office to be known as the arson investigation detail subject to the jurisdiction of the Fire Marshal. (1960 C., § 331.100; 1994 C., § 3.24.550; Ord. No. 56124, § 1(part), 1972.)

Editor's Note:

Ord. 56124 was approved March 20, 1972.

3.24.560 Membership—Appointments.

The arson investigation detail shall include a chief executive officer to be known as the chief investigator, fourteen investigators, one stenographer and one clerk typist. So far as may be possible from manpower resources, the Chief of the Fire Department shall appoint the chief investigator who shall be an officer of the Fire Department of the rank of captain or higher, fourteen investigators who shall be officers of the Fire Department, one stenographer and one clerk. (1960 C., § 331.110; 1994 C., § 3.24.560; Ord. No. 56124, § 1(part), 1972.)

3.24.570 Powers—Training requirement.

A. Fire Department officers who are assigned to the arson investigation detail shall possess after special commission of the Board of Police Commissioners all police powers of the City and the Chief of Police under the laws of the State of Missouri which such commission shall not be granted until the Board of Police Commissioners has been satisfied that such special officers have received proper academic and on the job training as to be qualified to use such powers within the proper limits of law. Such commission shall also be limited specifically by the Board of Police Commissioners to only such time as such officers are on duty with the arson investigation detail. The special commission provided for herein shall be revoked summarily whenever it shall be requested by any member of the Board of Police Commissioners, by the Chief of Police, by the Chief of the Fire Department, by the Fire Marshal, or by the chief investigator.

B. In addition to the foregoing, the Fire Marshal shall not permit any Fire Department member to be armed. (1960 C., § 331.120; 1994 C., § 3.24.570; Ord. No. 56124, § 1(part), 1972.)

3.24.580 Training program.

A training program shall be established by the Fire Department for the members of the arson investigation detail concerning cause and origin of fires, the law of arson, techniques of arson investigation. A training program shall be established by the Police Department concerning criminal investigation, laws of arrest and search, offensive and defensive tactics, interrogation and interviews and handling of juveniles. (1960 C., § 331.130; 1994 C., § 3.24.580; Ord. No. 56124, § 1(part), 1972.)

3.24.590 Equipment to be provided.

All transportation, communication, recording, photographic equipment necessary to perform the duties of the arson investigation detail shall be provided subject to the approval of the Fire Marshal from existing resources or supplemented appropriations approved by the Board of Aldermen. (1960 C., § 331.140; 1994 C., § 3.24.590; Ord. No. 56124, § 1(part), 1972.)

3.24.600 Office equipment and administrative employees.

All office equipment and administrative employees shall be provided by the Fire Department from existing resources or supplemented appropriations approved by

the Board of Aldermen. (1960 C., § 331.150; 1994 C., § 3.24.600; Ord. No. 56124, § 1(part), 1972.)

3.24.610 Purpose and duties.

The arson investigation detail herein established is required because an emergency situation exists which requires an expert strike force to investigate all fires of undetermined origin or arson and apprehend the perpetrators thereof. The arson investigation detail shall investigate all such fires and every department of the City is hereby authorized and directed to cooperate and aid the arson investigation detail whenever requested by the chief investigator. (1960 C., § 331.160; 1994 C., § 3.24.610; Ord. No. 56124, § 1(part), 1972.)

3.24.620 Written reports required.

The chief investigator shall establish communication with the Insurance Division of the State of Missouri, and shall make monthly written reports of the work being conducted by the arson investigation detail to the Mayor, the Board of Police Commissioners, the Director of Public Safety, the Circuit Attorney and the Superintendent of the Insurance Division of the State of Missouri. (1960 C., § 331.170; 1994 C., § 3.24.620; Ord. No. 56124, § 1(part), 1972.)

PART VI. MUTUAL FIRE PROTECTION SERVICES

3.24.670 Contract for services—Generally.

The City, acting by and through its Fire Department, is hereby authorized to contract with:

Spanish Lake Fire Protection District
Affton Fire Protection District
Ballwin Fire Protection District
Berkely Fire Department
Black Jack Fire Protection District
Brentwood Fire Department
Chesterfield Fire Protection District
Clayton Fire Department
Community Fire Protection District
Crestwood Fire Department
Creve Coeur Fire Protection District
Des Peres Fire Department
Eureka Fire Protection District
Fenton Fire Protection District
Ferguson Fire Department
Florissant Valley Fire Protection District
Frontenac Fire Department
Gardenville Fire Protection District
Glendale Fire Department
Hazelwood Fire Department
High Ridge Fire Protection District
Jennings Fire Department
Kinloch Fire Protection District
Kirkwood Fire Department
Lemay Fire Protection District
Ladue Fire Department
Manchester Fire Protection District
Maplewood Fire Department
Maryland Heights Fire Protection District
Mehlville Fire Protection District
Mid County Fire Protection District
Moline Fire Protection District
Normandy Fire Protection District
Olivette Fire Department
Pacific Fire Protection District
Pattonville Fire Protection District
Richmond Heights Fire Department
Riverview Fire Protection District
Robertson Fire Protection District
Rock Community Fire Protection District
Rock Hill Fire Department
Shrewsberry Fire Department
University City Fire Department
Valley Park Fire Protection District
Webster Groves Fire Department
West Overland Fire Protection District;

and such other cities, counties, villages, fire protection districts or municipalities, effective upon the passage and approval of a like ordinance by the legislative bodies of any of said entities, for the interchange of service of the fire departments of said cities and fire protection districts respectively, upon the terms and conditions contained in this chapter. (1994 C., § 3.24.670; Ord. No. 60366, § 1, 1987.)

3.24.680 Mutual aid agreement—Scope of response.

The Fire Department of the City shall respond to fire alarms or requests for assistance in life or property threatening situations, on call to any of the said cities and fire protection districts, and the fire departments of those cities and fire protection districts shall respond to fire alarms on call in any part of the City and to include such areas under the form of mutual aid for fire protection service. The obligation of the parties hereto shall be limited to responding to fire alarms and providing fire protection assistance only to the extent that equipment and personnel are reasonably available to provide

assistance. (1994 C., § 3.24.680; Ord. No. 60366, § 2, 1987.)

3.24.690 Mutual aid agreement—Termination.

Mutual aid agreements executed pursuant to this chapter may be terminated by the passage of an ordinance so providing. Notice of the passage of such ordinance shall be given by written notice to the Chief Officer of the respective parties and termination shall take effect at least sixty (60) days from the date of service of such notice. (1994 C., § 3.24.690; Ord. No. 60366, § 3, 1987.)

3.24.700 Execution of agreement.

Pursuant to enactment of the ordinance codified in this chapter, the Fire Chief and Comptroller are hereby authorized and directed on behalf of the City, to sign their names in their respective offices to mutual aid plan agreements consistent with this chapter and to deliver executed copies attested by the City Register to the aforesaid other parties. (1994 C., § 3.24.700; Ord. No. 60366, § 4, 1987.)

3.24.710 Consideration for service.

The consideration for the service of the Fire Department of each party hereto shall be the service given for the protection of the lives and property in the cities, counties, villages and fire protection district. No compensation shall accrue or be paid by either party for the service of the fire departments of the other parties hereto. (1994 C., § 3.24.710; Ord. No. 60366, § 5, 1987.)

3.24.720 Nonliability for failure to respond.

None of the cities, counties, villages, municipalities and fire protection districts shall be liable to the other for failure to respond to any call by the other or for delay or negligence or mistake in receiving or responding to any call. This chapter shall not be interpreted as being for the benefit of any person, firm or corporation not a party hereto. (1994 C., § 3.24.720; Ord. No. 60366, § 6, 1987.)

3.24.730 Nonliability by participants to other than regular employees.

None of the cities, counties, villages, municipalities and fire protection districts shall be liable by virtue of this chapter to any fireman, official or employee of the other, nor shall any fireman, official or employee be considered, for any purpose, a fireman, official or employee other than the one by which he is regularly employed. (1994 C., § 3.24.730; Ord. No. 60366, § 7, 1987.)

3.24.740 Equipment loss or damage—Liability.

In case of loss or damage to the equipment or property of any party while responding to fire alarms, such loss or damage shall be borne by the City, county, village, municipality or fire protection district owning such equipment or property. (1994 C., § 3.24.740; Ord. No. 60366, § 8, 1987.)

3.24.750 Mutual aid participants subject to local laws and ordinances.

Except as otherwise provided for in this chapter, when the respective fire department responds to an alarm in other cities, counties, villages, municipalities or fire protection districts it shall, during the time that its equipment and personnel are in said cities, counties, villages, municipalities or fire protection districts, have the same status and be subject to and protected by all of the laws and ordinances of said municipalities and fire protection districts that have application to such municipalities and fire protection districts. (1994 C., § 3.24.750; Ord. No. 60366, § 9, 1987.)

3.24.760 Functions of mutual aid—Notifying party to be in command.

Mutual aid plans shall include the following functions:

A. Immediate joint response of several fire departments to alarms of fire from high risk properties and request for assistance in life threatening or property threatening situations;

B. Response from the communities to alarms adjacent to the boundaries between fire department areas;

C. Covering of vacated territories by outside departments when the resources of the local department are engaged to the extent that its ability to furnish adequate protection for subsequent fires has been reduced;

D. Provision of additional units to assist at major fires that may be too great for the local department to handle efficiently; and

E. The provision of specialized types of firefighting equipment not available in adequate quantity locally.

While within the area of the notifying party, such fire department, its equipment and personnel shall be under the command of the ranking officer then present of the notifying party within whose area such fire or

other occurrence is located, for all purposes relating thereto. However, if at the time of such notification there is then any situation within the area of the party notified, which in the judgment of its Senior Officer then present requires that some or all of its fire department equipment and personnel remain within the area of such notified party by reason of any such situation, such Senior Officer shall so notify the person calling for aid hereunder, and the notified party may retain and not send such of its fire department, equipment and personnel as is so needed. (1994 C., § 3.24.760; Ord. No. 60366, § 10, 1987.)

3.24.770 Understanding of mutual aid agreements.

It is understood and agreed that the City of St. Louis Fire Department may enter into mutual aid agreements with respect to the furnishing of fire protection by other fire departments. In the event such other fire departments are parties to this agreement, such areas shall be considered parties to this agreement. (1994 C., § 3.24.770; Ord. No. 60366, § 11, 1987.)

Chapter 3.26

BOARD OF PUBLIC SERVICE

Designation of outer roadway to street for issuance of building permit, see § 3.48.210.

President to serve on convention and exhibition center commission, see § 3.62.020.

Charter:

Art XIII Board of public service

Sections:

3.26.010 Bonds.

3.26.020 Certification of pay rolls and accounts.

3.26.030 Secretary—Appointment—Bond.

3.26.040 Secretary—Duties.

3.26.050 Fixture or change of rates of public utility corporations.

3.26.010 Bonds.

Within fifteen days after appointment, a bond shall be given to the City in respective amounts by the officers for the faithful performance of their respective duties: The President of the Board of Public Service, twenty-five thousand dollars; the Directors respectively of Public Utilities—Streets—Welfare—Parks, Recreation and Forestry—Health and Hospitals—Public Safety—the Water Commissioner and the Street Commissioner, twenty thousand dollars each; Health Commissioner, Hospital Commissioner, Commissioner of Parks, Commissioner of Recreation, Commissioner of Forestry, Commissioner of Children's Services, Commissioner of Adult Services, Chief of the Fire Department and Building Commissioner, ten thousand dollars each; Commissioner of Weights and Measures and Assistant Hospital Commissioner, five thousand dollars each. (1948 C., Ch. 2, § 59; 1960 C., § 12.010; 1994 C., § 3.26.010; Ord. No. 49567, § 1, 1959.)

City Counselor Ops.: 8178

3.26.020 Certification of pay rolls and accounts.

All pay rolls and all accounts for work done or materials furnished under the direction of any member of the Board of Public Service shall be submitted to such member, who shall examine them and if found correct certify them to the Comptroller. (1948 C., Ch. 2, § 60; 1960 C., § 12.020; 1994 C., § 3.26.020.)

City Counselor Ops.: 8178

3.26.030 Secretary—Appointment—Bond.

The Board of Public Service shall appoint a Secretary, who shall file a bond in the sum of five thousand dollars for the faithful performance of his duties. (1948 C., Ch. 2, § 61; 1960 C., § 12.030; 1994 C., § 3.26.030.)

City Counselor Ops.: 8178

3.26.040 Secretary—Duties.

The Secretary of the Board shall keep in suitable books a record of the proceedings, fully indexed, of all meetings of the Board. The Secretary of the Board shall make a record of all the Board's acts and orders. The Secretary of the Board shall safely and properly keep and file all petitions, documents and papers belonging to the Board or that may be referred to it. He shall also prepare an abstract of the proceedings of the Board to be published in the papers doing the City printing. (1948 C., Ch. 2, § 62; 1960 C., § 12.040; 1994 C., § 3.26.040; Ord. No. 54924, § 1, 1968.)

City Counselor Ops.: 8178, 8729, 9633

3.26.050 Fixture or change of rates of public utility corporations.

The Board of Public Service is authorized and directed to obtain by petition to the Public Service Commission of the state, a fixture or change of rates in connection with each and every contract which at any time may be made and entered into by and between the

City and any public utility corporation for utility service to be rendered by such corporation. (1948 C., Ch. 55, § 3; 1960 C., § 12.050; 1994 C., § 3.26.050.)

Chapter 3.28

PRESIDENT OF BOARD OF PUBLIC SERVICE

Bond, see § 3.26.010.

Duty to serve on:

Community development commission, see § 3.48.100.

Municipal bridge commission, see § 3.70.010.

Charter:

Art VIII § 1 Appointment of president of Board to be made by mayor

Art. XIII § 9 Department of the president

City Counselor Ops.: 8178

Sections:

3.28.010 Designation of subordinate to sign name of President.

3.28.020 Revocation of designation.

3.28.030 Associate to President.

3.28.010 Designation of subordinate to sign name of President.

The President of the Board of Public Service is authorized to designate an assistant, clerk or other subordinate to sign his name to vouchers, requisitions for supplies and other official documents. The designations shall be in writing and on the same sheet of paper the assistant or the clerk or the subordinate designated shall write the signature of the President of the Board of Public Service in the form in which he will execute vouchers, requisitions and other official documents. The written designation shall then be filed in the office of the Register. Thereafter the President of the Board of Public Service shall be deemed to have adopted as his own the signature of the assistant, clerk or subordinate to any voucher, requisition or other official document. (1948 C., Ch. 2, § 63; 1960 C., § 13.010; 1994 C., § 3.28.010.)

3.28.020 Revocation of designation.

The President of the Board of Public Service may at any time revoke any designation made by him under the authority of Section 3.28.010 and designate any other assistant clerk or subordinate to execute vouchers, requisitions for supplies and other official documents as provided. The revocation and new designation shall be filed in the office of the Register. (1948 C., Ch. 2, § 64; 1960 C., § 13.020; 1994 C., § 3.28.020.)

3.28.030 Associate to President.

The President of the Board of Public Service may appoint an associate, who shall be an engineer of technical training, of at least ten years' experience and qualified to design and direct engineering work. He shall act as executive assistant to the President in the conduct of all affairs of the Department of the President. He shall give bond to the City in the amount of ten thousand dollars. (1948 C., Ch. 2, § 65; 1960 C., § 13.030; 1994 C., § 3.28.030.)

City Counselor Ops.: 9919

Chapter 3.29

EQUIPMENT SERVICES DIVISION TO DEPARTMENT OF PRESIDENT OF BOARD OF PUBLIC SERVICE

Sections:

3.29.010 Established—Commissioner—Appointment—Duties—Staff.

3.29.010 Established—Commissioner—Appointment—Duties—Staff.

A. There is hereby established in the Department of the President of the Board of Public Service an Equipment Services Division. The President of the Board of Public Service shall appoint an Equipment Services Commissioner who shall have such qualifications as may be prescribed by the Director of Personnel. The Commissioner shall be the head of the Division and be responsible for the City's large fleet of vehicles and equipment as assigned from time to time. It shall be his or her duty to continually develop and implement preventive maintenance programs, accounting and equipment maintenance systems, the annual operating and equipment budgets and prepare specifications for new and replacement equipment and supplies.

B. The Commissioner may appoint, with the approval of the President of the Board of Public Service, such staff as are contained on an authorized Table of Organization from eligibility lists furnished by the Director of Personnel. The Commissioner shall annually make to the President a report on all of the activities of the Division which may be included in the Department's annual report. (1994 C., § 3.29.010; Ord. No. 59027, § 1, 1984.)

Chapter 3.30

DEPARTMENT OF PUBLIC UTILITIES

Bond see § 3.26.010.

Director to serve on municipal bridge commission, see § 3.70.010.

Charter:

Art. XIII §§ 10—12 Department of public utilities

Art. XIX § 2 Control of public utilities by board of aldermen

Sections:

3.30.010 Assistant to Director.

3.30.020 Heating courthouse.

3.30.030 Gas bills.

3.30.010 Assistant to Director.

The Director of Public Utilities is authorized to appoint one assistant, who shall be an engineer of technical training in active practice in his profession, who has at least ten years experience in responsible charge of engineering work and who has at least five years' experience in public utility rate, service and accounting practices. He shall act as Chief Assistant to the Director of Public Utilities in the conduct of the affairs of the Division of Light, Heat and Power of the Department of Public Utilities, and shall be the Division Engineer in charge of that office. He shall perform special duties elsewhere in the Department of Public Utilities as may be assigned to him by the Director. (1948 C., Ch. 78; 1960 C., § 5.40.010; 1994 C., § 3.30.010.)

City Counselor Ops.: 8178

3.30.020 Heating courthouse.

It shall be the duty of the Department of Public Utilities to make all necessary arrangements for, and attend to, the heating of the courthouse. (1948 C., Ch. 55, § 4; 1960 C., § 540.020; 1994 C., § 3.30.020.)

3.30.030 Gas bills.

All bills of gas corporations against the City shall be submitted by them to the Department of Public Utilities, which shall certify their correctness to the Comptroller, after making all proper deductions under the forms of any contract or ordinance. (1948 C., Ch. 55, § 75; 1960 C., § 540.030; 1994 C., § 3.30.030.)

Chapter 3.32

DEPARTMENT OF STREETS

For permits and permit fees, see Ch. 20.46.

Charter:

Art. XIII § 13 Department of streets

Sections:

3.32.010 Office of Director established.

3.32.020 Sections established in office of Director.

3.32.030 Head of Street Division.

3.32.040 Sections established in Street Division.

3.32.050 Street Commissioner.

3.32.060 Bonds for certain employees.

3.32.070 Director of Streets to furnish plats to City Counselor.

3.32.080 Director of Streets to notify owner of improper location of stopcock boxes.

3.32.010 Office of Director established.

There is established in the Department of Streets the office of the Director. (1948 C., Ch. 2, § 66; 1960 C., § 255.010; 1994 C., § 3.32.010.)

For bond, see § 3.26.010

Duty to serve on:

Community development commission, see § 3.48.100

Municipal auditorium commission, see § 3.56.150

Municipal bridge commission, see § 3.70.010

Charter:

Art. VIII § 1 Appointment of director of streets to be made by mayor

City Counselor Ops.: 8178

3.32.020 Sections established in office of Director.

There are established in the office of the Director in the Department of Streets the following sections: Street Inspection Section and the Harbor and Wharf Section. (1960 C., § 255.015; 1994 C., § 3.32.020; Ord. No. 53599, § 1, 1965.)

3.32.030 Head of Street Division.

The title of the Head of the Street Division shall be Street Commissioner. (1948 C., Ch. 2, § 67; 1960 C., § 255.020; 1994 C., § 3.32.030.)

For bond, see § 3.26.010

City Counselor Ops.: 8178

3.32.040 Sections established in Street Division.

There are established in the Street Division in the Department of Streets the following sections: Street

Maintenance Section, Bridge Maintenance Section and Street Cleaning Section. (1948 C., Ch. 2, § 68; 1960 C., § 255.030; 1994 C., § 3.32.040; Ord. No. 53600, § 2, 1965; Ord. No. 47057, § 1, 1954.)

3.32.050 Street Commissioner.

The Director of Streets is authorized to appoint a Street Commissioner who shall be the head of the Street Division and whose duties shall be those prescribed by Charter Article XIII § 13, and additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 69; 1960 C., § 255.040; 1994 C., § 3.32.050.)

For bond, see § 3.26.010

City Counselor Ops.: 8178

3.32.060 Bonds for certain employees.

The following employees shall give bond in the sum of five thousand dollars: the Accountant, the Superintendent of Asphalt Plants and Maintenance, the Superintendent of Street Repairs, the Supervisor of Bridges, the Chief Excavation Inspector, the Wharf Master, the Superintendent of Garbage, Refuse Collection and Disposal and Stable, the Superintendent of Street Cleaning and the Superintendent of Soft Paved Streets. (1948 C., Ch. 2, § 74; 1960 C., § 255.050; 1994 C., § 3.32.060.)

3.32.070 Director of Streets to furnish plats to City Counselor.

Whenever the Board of Aldermen shall provide by ordinance for establishing, opening, widening or altering any street, avenue, alley, wharf, market place or public square, or route for a sewer or water pipe, or for other public work, or to condemn private property for public use, and it is necessary to take private property for the same, the Director of Streets shall furnish the City Counselor with all necessary plats, showing the property affected by the proposed improvements, and the metes and bounds and the names of the owners thereof. (1948 C., Ch. 2, § 75; 1960 C., § 255.060; 1994 C., § 3.32.070.)

3.32.080 Director of Streets to notify owner of improper location of stopcock boxes.

Whenever it comes to the notice of the Director of Streets that any gas or water stopcock box is not located as required by ordinance or projects above the surface of any paved sidewalk, it shall be his duty to notify by mail the persons supplying gas, with respect to gas stopcock box, and the owner or agent of the property fronting thereon with respect to the water stopcock box, to have the box properly located, or set even with the surface, within ten days from the date of the notice. If the persons supplying gas and the owner or agent fail to comply with the notice within the time specified, they shall be guilty of a misdemeanor. (1948 C., Ch. § 2; 1960 C., § 255.070; 1994 C., § 3.32.080.)

Chapter 3.36

DEPARTMENT OF WELFARE

For public defender bureau, legal aid bureau, see Ch. 3.16.

Charter:

Art I § 1(10) Authority of city to take and hold property upon trusts and to administer trusts

Art. I § 1(31) Authority of city to provide for the support of children, aged and insane persons

Art. I § 1(32) Authority of city to maintain charitable institutions

Art. III § 14-A Department of welfare

Sections:

Part I. Director of Welfare

3.36.010 Duties.

Part II. Commissioner of Children's Services

3.36.050 Duties.

Part III. Board of Children's Services

3.36.100 Created—Members.

3.36.105 Selection of officers—Office space.

3.36.110 Meetings—Attendance.

3.36.115 Compensation—Expenses.

3.36.120 Agent powers and duties.

3.36.125 Assistant agent.

3.36.130 Case supervisors of foster care section and mothers' aid section.

3.36.135 Social case workers.

3.36.140 Other employees.

3.36.145 Receiving and taking charge of children.

3.36.150 Placing children.

3.36.155 Expenses for care.

3.36.160 Contracts with private charitable institutions.

3.36.165 Annual and special reports.

Part IV. Commitment of Delinquent Children

3.36.180 Board of Children's Services may receive children upon commitment of juvenile court of St. Louis County.

3.36.185 Children not to be committed unless adjudged delinquent—Term of commitment.
3.36.190 Resident requirements.
3.36.195 Rules and regulations for care.
3.36.200 Payment for maintenance.

Part V. Bellefontaine Farms

3.36.250 Powers and authority of Board of Children's Services.
3.36.255 Powers and duties of superintendent and assistant superintendent.
3.36.260 Monthly report of superintendent—Statements of receipts and expenses.
3.36.265 Board, room and transportation may be furnished teachers.

Part VI. Meramec Hills

3.36.280 Designated.
3.36.285 Supervision.

Part VII. Division of Adult Services

3.36.300 Commissioner—Appointment and duties.
3.36.310 Presentence investigation defined.
3.36.311 Presentence investigation fee.
3.36.320 Division of Corrections—Enrollment fee for alternative community service program managed by Parole and Probation Staff.

Part VIII. Board of Adult Welfare Services

3.36.350 Duties—Reports.

Part IX. Board of Commissioners of the Bryan Mullanphy Emigrant and Traveler's Relief Fund

3.36.400 Members—Appointment.
3.36.405 Board defined.
3.36.410 Powers generally.
3.36.415 Depositories—Securities.
3.36.420 Real estate.
3.36.425 Meetings.
3.36.430 Officers.
3.36.435 Executive director.
3.36.440 Conflict of interest—Compensation.
3.36.445 Offices for travelers aid.
3.36.450 Severance.
3.36.455 Annual audit.

Part X. Advisory Council on Aging

3.36.470 Established.
3.36.480 Powers and duties.
3.36.490 Advisory Council—Established—Membership.
3.36.500 Advisory Council—Meetings.
3.36.510 Advisory Council—Duties.

Part XI. Relocation Services

3.36.550 Created—Objective—Responsibilities.
3.36.555 Agreements and contracts.
3.36.560 Commissioner.
3.36.565 Board.

Part XII. Youth Services

3.36.580 Created—Duties.
3.36.585 Commissioner.
3.36.590 Board.

Part XIII. Human Resources Planning and Development Officer

3.36.630 Office established.
3.36.635 Appointment.
3.36.640 Duties.

Part XIV. Office of Consumer Affairs

3.36.680 Established—Supervisor.
3.36.685 Citizens' consumer advisory committee.
3.36.690 Duties.
3.36.695 Development of comprehensive consumer legislation.
3.36.700 Special research projects.
3.36.705 Private local groups.
3.36.710 Investigations.
3.36.715 Representation for consumer interests.
3.36.720 Compensation.

Part XV. Office of the Disabled

3.36.730 Established.

3.36.735 Commissioner—Appointment—Authority.
3.36.740 Powers and duties.
3.36.745 Advisory council—Appointment.
3.36.750 Advisory council—Meetings.
3.36.755 Advisory council—Quorum—Rules and regulations.
3.36.760 Advisory council—Authority and responsibility.

PART I. DIRECTOR OF WELFARE

3.36.010 Duties.

The Director of Welfare shall perform his duties as prescribed by the Charter and additional duties as may be prescribed by ordinance. The Director of Welfare shall have under his jurisdiction the management, control and supervision of divisions of the Department of Welfare. (1948 C., Ch. 2, § 79; 1960 C., § 185.010; 1994 C., § 3.36.010; Ord. No. 49758, § 1, 1959.)

For bond, see § 3.26.010

Duty to appoint:

Executive secretary of charity solicitations commission, see § 3.60.030 Legal aid bureau director, see §§ 3.16.030, 3.16.040

Public defender bureau director, see §§ 3.16.010, 3.16.040

Charter:

Art. VIII § 1 Appointment of director of public welfare to be made by mayor

Art. XIII § 14-A(a) Director—qualifications—duties

City Counselor Ops.: 8585, 8769, 9362

Editor's note:

The Director of Welfare is referred to as the Director of Human Services in contemporary ordinances.

PART II. COMMISSIONER OF CHILDREN'S SERVICES

3.36.050 Duties.

The Director of Welfare shall appoint the Commissioner of Children's Services whose duties shall be those prescribed by the Charter and additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 80; 1960 C., § 185.020; 1994 C., § 3.36.050; Ord. No. 49758, § 1, 1959.)

For bond, see § 3.26.010

Charter:

Art. XIII § 14-A(b) Division of children's services

City Counselor Ops.: 8585, 8769, 9362

PART III. BOARD OF CHILDREN'S SERVICES

3.36.100 Created—Members.

A Board of Children's Services is created consisting of twelve members, at least five of whom shall be women, who shall be appointed by the Mayor for a term of four years each, but not more than three members shall be appointed in any one year except to fill vacancies in unexpired terms. (1948 C., Ch. 60, § 2; 1960 C., § 187.010; 1994 C., § 3.36.100.)

Charter:

Art. XIII § 14-A(d) Board of children's services

3.36.105 Selection of officers—Office space.

The Board shall choose from among its members a Chairman, Vice-Chairman, and Secretary. The secretary shall keep a record of all proceedings of the Board. The Board shall have an office in a municipal building, as may be designated by the Mayor. (1948 C., Ch. 60, § 3; 1960 C., § 187.020; 1994 C., § 3.36.105.)

3.36.110 Meetings—Attendance.

The Board shall meet on the fourth Tuesday of each month except a legal holiday, and shall hold special meetings as may be necessary. Absence from three consecutive regular meetings without giving excuse satisfactory to the Board and so entered upon the records, shall vacate the office of any member of the Board. (1948 C., Ch. 60, § 4; 1960 C., § 187.030; 1994 C., § 3.36.110.)

3.36.115 Compensation—Expenses.

The members of the Board shall serve without compensation. Necessary expenses incurred by them in the discharge of their duties, with the approval of a majority of the Board, shall be refunded to them. (1948 C., Ch. 60, § 5; 1960 C., § 187.040; 1994 C., § 3.36.115.)

3.36.120 Agent powers and duties.

The agent of the Board of Children's Services shall have under his jurisdiction the general management, control, supervision and administration of all matters relating to the work of the Board, and all subordinates thereof, except in matters pertaining to the administration of Bellefontaine Farms and Meramec Hills. The agent is granted full authority to control and direct the exercise of all the powers, duties, responsibilities and obligations as defined in the Charter and in the ordinances of the City pertaining to the jurisdiction, power and authority of the Board of Children's Services. The agent shall perform his duties under the general direc-

tion of the Board, and in accordance with rules and regulations as promulgated by the Board for the guidance of the agent. (1948 C., Ch. 60, § 6(part); 1960 C., § 187.050; 1994 C., § 3.36.120.)

3.36.125 Assistant agent.

It shall be the duty of the assistant agent to assist the agent in the exercise of the duties of the agent, and to maintain central control and coordination of the work of the staff, and to perform other duties as assigned by the Board or the agent, under their direction. In the temporary absence or incapacity of the agent, the assistant agent shall be in charge of the administration of the work of the Board, and shall be designated as acting agent, and shall serve without any increase in salary. (1948 C., Ch. 60, § 6(part); 1960 C., § 187.060; 1994 C., § 3.36.125.)

3.36.130 Case supervisors of foster care section and mothers' aid section.

The case supervisor, foster care section, shall direct the case work of all social case workers assigned to the foster care section. The case supervisor, mothers' aid section, shall direct the case work of all social case workers assigned to the mothers' aid section. Both case supervisors shall perform their duties under the guidance of the agent and assistant agent, and shall perform other duties as formulated for their positions. (1948 C., Ch. 60, § 6(part); 1960 C., § 187.070; 1994 C., § 3.36.130.)

3.36.135 Social case workers.

It shall be the duty of social case workers in accordance with the responsibilities and duties of their respective symbolized positions, and under the direction of the case supervisor of their section, to investigate all cases in which courts, parents, other persons or other agencies, are seeking the commitment of, admission of, or material relief of, or service for children, to or from the Board of Children's Services; or to place and supervise children in foster homes and with their own mothers, by developing and exercising plans for the material, medical and social adjustment of such children, and to plan and effect the rehabilitation of children with their own parents or relatives and to plan and effect the rehabilitation of families into social and financial independence, and to perform all other work incident to the investigation, placement and supervision of cases of children under circumstances as aforesaid, and to properly record the complete chronological development of each child in case histories. (1948 C., Ch. 60, § 6(part); 1960 C., § 187.080; 1994 C., § 3.36.135.)

3.36.140 Other employees.

The duties of all other employees shall be designated by their respective titles in the classified service. The duties of all employees of the Board may be further designated by the Board. (1948 C., Ch. 60, § 6(part); 1994 C., § 3.36.140.)

3.36.145 Receiving and taking charge of children.

The Board of Children's Services shall have the power and authority to receive and take charge of any child at its discretion upon commitment to it by any court of competent jurisdiction in the City. The Board shall have the power and authority to receive or take charge of any foundling or abandoned child whose parents are unknown, and to declare the same dependent upon the public for support. Upon application of its legal custodian the Board shall have power and authority to receive and take charge of any dependent child. All children so committed or received by the Board shall be given care and treatment as the Board may determine. Every application shall allege dependency upon the public for support and shall request and tender to the Board its complete charge and control over the child, and upon the assent of the Board to the application, charge and control shall vest absolutely in the Board. The Board shall not receive or take charge of any child who has not been, or whose parents or guardians have not been residents of the City for at least one year prior to the presentation of the child to the Board, except foundlings or abandoned children whose parents or guardians are unknown.

The Board shall prepare from time to time rules and regulations for the reception by it of any child. The rules and regulations shall determine the conditions under which any child shall be received by the Board. The rules and regulations shall be entered on the records of the Board. (1948 C., Ch. 60, § 7; 1960 C., §§ 187.090—187.110; 1994 C., § 3.36.145.)

City Counselor Ops.: 8548, 8603, 8604

3.36.150 Placing children.

The Board of Children's Guardians shall have power and authority to place any child in its charge for temporary custody in the house of detention; to place defective children in any public institution within the state for the care of defective children; and to place

neglected, dependent or abandoned children of the Bellefontaine Farm or other municipal institution of the City, but only in case no suitable family homes can be found for them, and only until such homes can be found. The Board shall have the power and authority to place any child in its charge or under its control with any family qualified and able in the opinion of the Board to provide for the comfort and wants of the child, and to care for its moral and physical welfare. No child shall be placed with any family when the head thereof is of different religious affiliation from that of the child's parents or guardian, if affiliation can be ascertained. The Board shall have the power and authority to place any child with its own mother if she is a widow or if her husband is confined in the St. Louis sanitarium or in any public institution of the United States, or of the states, territories or possessions of the United States, and then only after the Board through an investigation by its agent has determined that the mother has been a resident of the City for a period of at least two years immediately prior thereto and is competent, morally, mentally and physically to properly rear, supervise and train the child, and that her home is a suitable and fit place for the child. The Board may make further rules and regulations to safeguard the placement, care and attention of children boarded in foster homes or in their own homes as they may in their judgment deem necessary. The Board shall, so far as practicable, place children within the City, and when not practicable, the children may be placed in the state within a radius of fifty miles of St. Louis. (1948 C., Ch. 60, § 8; 1960 C., § 187.120; 1994 C., § 3.36.150.)

3.36.155 Expenses for care.

For the board and maintenance of every child placed by the Board of Children's Services, the City shall pay whatever sum may be determined by the Board, subject to approval of the Board of Estimate and Apportionment. In addition to the amount thus fixed, the City, upon action of the Board of Children's Services, may pay for clothing and for medical treatment that is deemed necessary for the welfare of the child.

All expenditures authorized by the Board of Children's Services shall be certified by the Board Administrator, or in his absence, the director of the placing out division, or in the absence of both, the Chairman of the Board of Children's Services. The Board shall not authorize any payment for the maintenance of any child, after the child has reached his or her sixteenth birthday. For children under the care of the Board of Children's Services for a period of eighteen months prior to the child's sixteenth birthday, payment for maintenance may be authorized, until the child has reached his or her eighteenth birthday. (1948 C., Ch. 60, § 9; 1960 C., § 187.130; 1994 C., § 3.36.155; Ord. No. 47815, § 1, 1956.)

3.36.160 Contracts with private charitable institutions.

The Board shall have power to contract with private charitable institutions in the City, created and organized under the laws of the state, and established and suitably equipped for the care of children of tender years, for the reception and care of foundlings, at a rate not exceeding twelve dollars per month per child. Compensation is to be in full for every charge of every nature, for clothing, lodging, care, medical attendance, and maintenance of the child. Any contract may be abrogated at any time by the Board of Children's Services.

Any contract now existing that may have been made by the Mayor in placing foundlings in private charitable institutions shall remain in force and effect so far as the contract may affect any foundlings already placed in institutions, until abrogated by the Board of Children's Services, when such contract shall become null and void.

All foundlings admitted to private charitable institutions under the terms of Part II Chapter 3.36, and by contracts, shall be subject to the supervision of the Board of Children's Services and its representatives, and shall be cared for, maintained, clothed and otherwise provided for, under the rules and regulations which may be established by the Board and placed upon its records, and notice thereof duly given any institutions with which contracts may be made. Part III, Chapter 3.36, and rules and regulations that may be adopted shall become a part of any contract so made. No money shall be payable under any contract for any child after the same shall have passed the age of three years. (1948 C., Ch. 60, § 10; 1960 C., § 187.140; 1994 C., § 3.36.160.)

3.36.165 Annual and special reports.

On the first day of April of each year the Board of Children's Services shall render an annual report to the Mayor, detailing in full: 1. The work of the Board in taking charge of and placing children and foundlings, expenses of the department; 2. The supervision and

control of Bellefontaine Farms; 3. All other useful information dealing with the care of delinquent, neglected, dependent and defective children of the City as the Board may deem in its judgment important. In addition, the Board shall render special reports to the Mayor and the Board of Aldermen as requested under authority of Section 10 Article VIII of the Charter. Copies of the reports of the Board shall be filed in the municipal reference library. (1948 C., Ch. 60, § 20; 1960 C., § 187.150; 1994 C., § 3.36.165.)

PART IV. COMMITMENT OF DELINQUENT CHILDREN

3.36.180 Board of Children's Services may receive children upon commitment of juvenile court of St. Louis County.

In addition to the powers and authority vested in it by ordinance, the Board of Children's Services shall have the power and authority to receive and take charge of any child, at its discretion, upon proper commitment to it by the juvenile court of St. Louis County. (1948 C., Ch. 60, § 11; 1960 C., § 188.010; 1994 C., § 3.36.180.)

3.36.185 Children not to be committed unless adjudged delinquent—Term of commitment.

No child shall be committed to the care of the Board of Children's Services by the juvenile court of St. Louis County unless the child shall have been first declared and adjudged a delinquent child by the court. Commitment in such cases shall not be for a shorter term than eighteen months. (1948 Ch. 60, § 12; 1960 C., § 188.020; 1994 C., § 3.36.185.)

3.36.190 Resident requirements.

The Board shall not receive or take charge of any child committed to its care by the juvenile court of St. Louis County, who has not been, or whose parents or guardians have not been residents in St. Louis County for at least one year prior to the commitment of the child to the care and custody of the Board by the juvenile court of St. Louis County, except children who are at the time of commitment actual bona fide residents of the City. (1948 C., Ch. 60, § 13; 1960 C., § 188.030; 1994 C., § 3.36.190.)

3.36.195 Rules and regulations for care.

The Board of Children's Services shall have power and authority to care for any child committed to its care and custody by the juvenile court of St. Louis County in the same way and according to the same rules and regulations by which it looks after the custody, care, education, health, occupations, pleasures and general welfare of children now placed in its care by the juvenile court of the City. (1948 C., Ch. 60, § 14; 1960 C., § 188.040; 1994 C., § 3.36.195.)

3.36.200 Payment for maintenance.

The county court of St. Louis County shall, for the maintenance of each child committed to the care of the Board of Children's Services by the juvenile court of St. Louis County, pay to the Treasurer of the City, the cost of maintaining the child, which shall be ascertained by the annual reports of the Board, and pay in addition thereto a fixed percentage on the permanent investment which the City has in the institution to which the child is committed, to be ascertained in like manner as the cost of maintenance. (1948 C., Ch. 60, § 15; 1960 C., § 188.050; 1994 C., § 3.36.200.)

PART V. BELLEFONTAINE FARMS

3.36.250 Powers and authority of Board of Children's Services. (1948 C., Ch. 60, § 16; 1960 C., § 189.010; 1994 C., § 3.36.250.)

Editor's Note:

Text omitted as obsolete.

3.36.255 Powers and duties of superintendent and assistant superintendent. (1948 C., Ch. 60, § 17; 1960 C., § 189.020; 1994 C., § 3.36.255.)

Editor's Note:

Text omitted as obsolete.

3.36.260 Monthly report of superintendent—Statements of receipts and expenses. (1948 C., Ch. 60, § 18; 1960 C., § 189.030; 1994 C., § 3.36.260.)

Editor's Note:

Text omitted as obsolete.

3.36.265 Board, room and transportation may be furnished teachers. (1948 C., Ch. 60, § 19; 1960 C., § 189.040; 1994 C., § 3.36.265.)

Editor's Note:

Text was omitted as obsolete.

PART VI. MERAMEC HILLS

3.36.280 Designated. (1948 C., Ch. 60, § 21; 1960 C., § 190.010; 1994 C., § 3.36.280.)

Editor's Note:

Text omitted as obsolete.

3.36.285 Supervision. (1948 C., Ch. 60, § 22; 1960 C., § 190.020; 1994 C., § 3.36.285.)

Editor's Note:

Text omitted as obsolete.

PART VII. DIVISION OF ADULT SERVICES

Editor's Note:

The Commissioner of Adult Services is referred to as the Commissioner of Corrections in contemporary ordinances and the Division of Corrections is under the supervision of the Director of Public Safety.

3.36.300 Commissioner—Appointment and duties.

The Director of Welfare shall appoint the Commissioner of Adult Services, whose duties shall be those prescribed by Article XIII, Section 14A(c) of the Charter and additional duties as prescribed by ordinance. (1948 C., Ch. 2, § 80(a) 1960 C., § 185.030; 1994 C., § 3.36.300; Ord. No. 49458, § 1, 1959.)

For bond, see § 3.26.010

Charter:

Art. XIII § 14-A(c) Division of adult services

City Counselor Ops.: 8585, 8769, 9362

3.36.310 Presentence investigation defined.

Each presentence investigation shall consist of at least the following:

A. Description of offense and background circumstances based on police reports and any other objective information concerning the offense;

B. Defendant's explanation of his/her involvement in offense;

C. List of all prior convictions of all state, federal, and municipal violations;

D. Social history of defendant including at least age, marital status and history, employment status and history, and defendant's education/training;

E. Probation officer's evaluation of defendant's attitude toward rehabilitation and need for such;

F. Probation officer's recommendation to the court for sentencing and/or rehabilitation. (1994 C., § 3.36.310; Ord. No. 58037, § 2, 1980.)

3.36.311 Presentence investigation fee.

There is hereby established a fee of twenty-five dollars ($25.00) for each presentence investigation conducted by the probation staff of the Department of Welfare, division of adult services, at the request of the Municipal Division of the Circuit Court of the City only for those defendants who plead guilty to or are found guilty of driving while under the influence of alcohol/drugs or any violation where alcohol is involved. The fee shall be paid to the City by the person undergoing the presentence investigation at the request of the Municipal Division of the Circuit Court of the City; provided, however, no fee shall be required to be paid by any person who is determined to be indigent under criteria established by the Department of Welfare, Division of Adult Services. (1994 C., § 3.36.311; Ord. No. 58037, § 1, 1980.)

3.36.320 Division of Corrections—Enrollment fee for alternative community service program managed by Parole and Probation Staff.

There is hereby established an enrollment fee of Sixty Dollars ($60.00) for the alternative community service program managed by the Parole and Probation Staff of the Division of Corrections. The enrollment fee shall be paid to the City by the person ordered to complete community service. No person shall be entitled to participate in the alternative community service program unless the enrollment fee established herein is paid in full; provided, however, no enrollment fee shall be required to be paid by any person ordered to complete community service who is determined to be indigent under criteria established by the Division of Corrections. (1994 C., § 3.36.320; Ord. No. 67923, § 1, 2008.)

PART VIII. BOARD OF ADULT WELFARE SERVICES

3.36.350 Duties—Reports.

The Board of Adult Welfare Services in relation to its operation and maintenance of adult municipal detentive, penal and corrective institutions shall include among its duties, obligations and authority, the following:

A. Personal visitations at least quarterly upon the various premises by two or more of its members so assigned, for the purpose of keeping the Board advised as to the condition of the physical plant, its housekeeping, cleanliness, safety and the comfort and discipline maintained and provided for the inmates.

B. It shall report promptly to the Commissioner of Adult Services and to the Director of Welfare any condition or circumstance found existing in any premises which it considers in need of corrective attention.

C. It shall file an annual report with the Commissioner of Adult Services and the Director of Welfare covering its activities with suggestions and recommendations as it deems advisable.

Reasonable clerical, stenographic and transportation expenses shall be provided by the Department of Welfare. (1994 C., § 3.36.350; Ord. No. 56265, § 1, 1972.)

Charter:

Art. XIII § 14-A(e) Board of adult welfare services

PART IX. BOARD OF COMMISSIONERS OF THE BRYAN MULLANPHY EMIGRANT AND TRAVELER'S RELIEF FUND

Prior history: Ord. 46426, 48379, 48494, 49019; 1948 C. Ch. 60 §§ 23—41

City Counselor Ops.: 9390, 9518

3.36.400 Members—Appointment.

The Mullanphy Fund shall be administered by the Board of Commissioners of the Bryan Mullanphy emigrant and Traveler's Relief Fund. The Board shall consist of seven members to be appointed by the Mayor as follows: three for three years; two for two years and two for one year. At the end of a member's term the Mayor shall appoint a member for a term of three years and such member shall remain in office until his successor qualifies. In case a vacancy occurs during the term of a member, the Mayor shall appoint someone to serve as a member for the unexpired term. The Board shall have power and perform duties as are conferred upon it by the Charter and ordinances of the City. (1960 C., § 191.010; 1994 C., § 3.36.400; Ord. No. 50577, § 1, 1961.)

Charter:

Art. XIII § 14-A(f) Mullanphy fund

City Counselor Ops.: 9518

Cases:

Evidence held insufficient to show a total or partial failure of the object for which the Mullanphy trust fund was created, so cy pres doctrine was not applied. *City of St. Louis v. McAllister,* 281 Mo. 26, 218 S.W. 319 (1920).

Since the legal title as trustee only is in the city, and the real use of the fund is not for municipal purposes, but for the benefit of a particular class, the fund is not exempt from taxation under the constitution. *St. Louis v. Wenneker,* 145 Mo. 230, 47 S.W. 105 (1898).

3.36.405 Board defined.

"Board" when used alone or separately in Part IX, Chapter 3.36, means the properly constituted Board of Commissioners of the Bryan Mullanphy Emigrant and Travelers' Relief Fund, the City of St. Louis, trustee. (1960 C., § 191.080(part); 1994 C., § 3.36.405; Ord. No. 50577, § 4(part), 1961.)

3.36.410 Powers generally.

The Board shall take and hold for the City, as trustee under the will of Bryan Mullanphy, deceased, for the use of the Mullanphy fund, all lands, moneys, bonds, notes or other evidence of indebtedness and all other property of every kind to which the City, as trustee may now or shall hereafter be entitled to hold by virtue of the will of Bryan Mullanphy, deceased, or which may be given, devised or bequeathed to the City, as trustee or to the Mullanphy fund for the same uses and purposes. The title to all such lands shall be in the name of the City, as trustee. The Board shall be invested with the control, management and direction of:

1. The property and affairs of the fund and shall have full power to make all needful regulations and bylaws not in conflict with any law or ordinances relating to same;

2. All types of aid which travelers may lawfully receive from the fund. (1960 C., §§ 191.020, 191.030; 1994 C., § 3.36.410; Ord. No. 50577, § 2(part), 1961.)

City Counselor Ops.: 8107

3.36.415 Depositories—Securities.

The Board shall designate one or more substantial depositories which may be banks or trust companies within the City, each depository shall give a bond to the City, as trustee under the will of Bryan Mullanphy, deceased, in a sum in excess of the deposit. No money of the fund shall be deposited in any bank or trust company not so designated as a depository, provided money of the fund may be deposited in any bank or trust company in the City, the deposits of which are insured by the federal government up to the amount of the deposit. The Board shall, from time to time, examine the solvency of the designated depositories and the sufficiency of the bonds thereof, and may demand new or additional security when deemed prudent.

The Board may appoint and compensate agents for the purpose of assisting in the administration of the fund, safekeeping of securities, rendering of proper accounts and obtaining investment advisory services. Any such agent must be a bank or trust company within the City with a capital and surplus in excess of five million dollars.

The securities and other property belonging to the fund may be lodged with a bank or trust company as a safekeeping agent or kept in a safe deposit vault where access shall be only by persons as the Board may designate. (1960 C., § 191.040; 1994 C., § 3.36.415; Ord. No. 50577, § 2(part), 1961.)

City Counselor Ops.: 8107

3.36.420 Real estate.

No real estate belonging to the fund shall be sold unless the sale is authorized by an ordinance of the City. The rental of real estate leased by the Board shall be fixed by it. No real estate shall be leased for a period longer than five years except in the case of a certain 5.19 acres of land at Hall and Carrie Street, St. Louis, Missouri, a part of the fund, a lease may be granted thereon by the Board for a period not to exceed twenty-five years. Before such option to release is granted by the Board an accredited real estate appraiser designated by the Board shall at that time appraise the 5.19 acres of land and shall advise the Board as to the current value of the 5.19 acres of land with the improvements thereon. The Board may then grant a new lease for a period not to exceed twenty-five years and the annual rent in the new lease shall not be less than five percent of the then-current appraised valuation of the land with the improvements thereon. The Board may provide in the lease or any new lease entered into as a result of the option to re-lease that the general taxes and special taxes for public improvements or any other special tax or any charge for any kind of public service, including, but not limited to, water service and sewer service shall be paid by the lessee.

The option to re-lease the 5.19 acres of land together with the improvements thereon must be carried out within ninety days after the expiration of the first lease and if not carried out by the lessee within that period of time, the Board may take possession of the 5.19 acres of land together with improvements thereon and the option to re-lease shall be expired. The rental of any and all real estate owned by the fund shall be fixed by the Board.

Special taxes for public improvement except as provided in this section shall be paid by the fund and it may in fixing the rental of property leased by it, determine whether other taxes shall be paid by the lessee or by the fund. (1960 C., §§ 191.050, 191.060; 1994 C., § 3.36.420; Ord. No. 50577, § 2(part), 1961.)

3.36.425 Meetings.

The main office of the Board, in which no private business shall be carried on, shall be located in the City. The Board shall meet at the office, or at any place within the City as determined by the Board, and at times as may be fixed by resolution. The President or in his absence the Vice-President may call a special meeting of the Board giving three days' notice, in writing to the other members. The notice may be by personal service or by mail. Three members shall constitute a quorum to transact business. (1960 C., § 191.070; 1994 C., § 3.36.425; Ord. No. 50577, § 3, 1961.)

3.36.430 Officers.

The Board shall elect from its members a President and a Vice-President for a term of one year and may appoint such other officers and employees as may be necessary for carrying out the purposes of the fund. (1960 C., § 191.080(part); 1994 C., § 3.36.430; Ord. No. 50577, § 4(part), 1961.)

3.36.435 Executive director.

The Board shall be responsible for all policies of the travelers aid. The Board shall employ an executive director who shall carry out these policies. The tenure of office of the executive director shall be at the pleasure of the Board. The Board may require, among other things, that the executive director shall possess an MA degree in social work from an accredited school of social work and have desirable administrative experience. The salary of the executive director shall not exceed seven thousand five hundred dollars annually, except an annual salary in excess of seven thousand five hundred dollars may be paid the executive director only if additional funds are provided by the united fund of greater St. Louis or its successors. The executive director shall be empowered to employ, with the advice and consent of the Board, all necessary employees to carry out the organization's program within the limits of the funds available.

The executive director shall have the authority to discharge an employee for cause, the lack of necessary funds being one cause. An employee who has been dismissed by the executive director shall have the privilege of appearing before the Board.

The education and experience of all staff members, other than the executive director, shall be consistent with the job specifications of the Civil Service Commis-

sion of the City for like or similar positions. (1960 C., § 191.090; 1994 C., § 3.36.435; Ord. No. 50577, § 5, 1961.)

3.36.440 Conflict of interest—Compensation.

No member, officer or employee of the Board shall be financially interested in any manner in any of the property of the fund, nor in any contract or transaction of the Board, or in any way in the affairs of the Board. No member, officer or employee shall receive any compensation or gratuity from any emigrant or traveler or from any hotel, boarding house, or transportation line, or from any source whatsoever except the Board in consideration of services rendered or to be rendered in connection with the activities of the Board. (1960 C., § 191.100; 1994 C., § 3.36.440; Ord. No. 50577, § 6, 1961.)

3.36.445 Offices for travelers aid.

The Board is authorized to establish and maintain offices for the conduct of the business of the travelers aid wherever it is deemed advisable by the Board for the purpose of giving aid to travelers in the greater St. Louis area. Operations at these offices shall be conducted under the name of "Mullanphy Travelers Aid."

The Mullanphy Travelers Aid may maintain a membership in any national or local travelers aid association and the cost of the membership shall be a charge on its budget. (1960 C., § 191.110; 1994 C., § 3.36.445; Ord. No. 50577, § 7, 1961.)

3.36.450 Severance.

Upon severing his connection with the fund, each member, officer, or employee thereof shall deliver to the Board, or his successor, all books, papers, moneys, furniture, property and all other things in his possession pertaining to his office or position. (1960 C., § 191.120; 1994 C., § 3.36.450; Ord. No. 50577, § 8, 1961.)

3.36.455 Annual audit.

The Board shall appoint a certified public accountant to conduct an annual audit of the affairs and financial condition of the Bryan Mullanphy Emigrant and Travelers' Relief Fund. A copy of the audit shall be sent to the Mayor and to other officials as he may designate. (1960 C., § 191.130; 1994 C., § 3.36.455; Ord. No. 50577, § 9, 1961.)

PART X. ADVISORY COUNCIL ON AGING

Editor's Note:

Ord. No. 68996, adopted Oct. 20, 2011, repealed Pt. X and enacted a new part as set out herein. The former Pt. X, §§ 3.36.470—3.36.500, pertained to the St. Louis Area Agency on Aging and derived from Ord. No. 55758 § 1 (part), 1979; and Ord. No. 56015 §§ 1—7, 1971.

3.36.470 Established.

There is hereby established the St. Louis Area Agency on Aging as a Division of the Department of Welfare, known as Department of Human Services. (1994 C., § 3.36.470; Ord. No. 68996, § 2, 10-20-2011)

3.36.480 Powers and duties.

The St. Louis Area Agency on Aging as a Division of the Department of Welfare, known as the Department of Human Services, in addition to other powers and duties as may be authorized and imposed by law, shall:

A. Advise and confer with the Mayor, the Board of Aldermen and other City, county, state and federal officials concerning projects and activities for older persons;

B. Study current patterns and conditions of living of older persons and identify such factors as may be beneficial or detrimental to the wholesome and meaningful living of older persons;

C. Develop and/or demonstrate new approaches, techniques and methods which hold promise of substantial contribution towards wholesome and meaningful living of older persons;

D. Develop and/or demonstrate new approaches, methods and techniques for achieving and/or improving coordination of community services for older persons;

E. Evaluate approaches, techniques and methods which may assist older persons to enjoy wholesome and meaningful living and to contribute to the strength and welfare of the community;

F. Prepare and adopt plans, reports, applications and agreements for cooperation with, and receiving assistance and grants from the other governmental agencies, local, state and/or federal, established for such purposes. (1994 C., § 3.36.480; Ord. No. 68996, § 3, 10-20-2011)

3.36.490 Advisory Council—Established—Membership.

There is established the Advisory Council on Aging, pursuant to federal and state regulations, which

shall consist of at least twelve members. At least 51% of the members shall be registered voters of the City. At least 50% of the members shall have reached the age of sixty years or older. Members of the Advisory Council shall be appointed by and serve at the pleasure of the Mayor. They shall receive no compensation for their services on the Advisory Council. (1994 C., § 3.36.490; Ord. No. 68996, § 4, 10-20-2011)

3.36.500 Advisory Council—Meetings.

The Advisory Council shall meet quarterly, or at the request of the Mayor, the Director of Human Services or the Director of St. Louis Area Agency on Aging. (1994 C., § 3.36.500; Ord. No. 68996, § 5, 10-20-2011)

3.36.510 Advisory Council—Duties.

The Advisory Council shall carry out advisory functions that further the area agency's mission of developing and administering the area plan, conducting public hearings, and coordinating community-based systems of services for older persons. The Council shall advise the agency on community policies, programs, and actions which affect older persons with the intent of ensuring maximum coordination and responsiveness to older persons. (1994 C., § 3.36.510; Ord. No. 68996, § 6, 10-20-2011)

PART XI. RELOCATION SERVICES

3.36.550 Created—Objective—Responsibilities.

There is created in the Department of Welfare a Division of Relocation Services, the general objective being to assist in the relocation of persons and businesses displaced by federally funded programs. The division will be responsible for coordinating the relocation needs of all agencies operating within the City, but not limited to, the Land Clearance Authority, state highway department, City Inspection Department, and the Board of Education. (1994 C., § 3.36.550; Ord. No. 56824, § 1(part), 1974.)

RSMo:

RSMo 523.200 *et seq.*

3.36.555 Agreements and contracts.

The division is empowered to enter into agreements and contracts for the distribution of federal funds provided for the relocation of persons and businesses in conformance with the Uniform Relocation and Assistance and Real Property Acquisition Act of 1970, as amended, 42 U.S.C. 4601, et seq., and assurances required thereunder. All agreements and contracts hereunder shall be approved by the Director of Welfare and the Comptroller, approved as to form by the City Counselor and filed with the City Register.

In the event that compliance with the provisions of the act would be accomplished by cooperative agreements between the City and the state, municipal corporations of this state or the United States government, its agencies and instrumentalities, authorization of ordinance is given the Division to enter contracts and agreements to facilitate compliance subject to approval of the Mayor and Comptroller. (1994 C., § 3.36.555; Ord. No. 56824, § 1(a, b), 1974.)

3.36.560 Commissioner.

The Division of Relocation Services shall be in charge of a Commissioner of Relocation Services appointed by the Director of Welfare. The Commissioner shall be responsible for executing the purposes of the Division of Relocation Services and shall appoint employees as necessary in compliance with the Civil Service provision of the Charter and ordinances. (1994 C., § 3.36.560; Ord. No. 56824, § 2, 1974.)

3.36.565 Board.

There shall be a Board of Relocation Services consisting of nine members appointed by the Mayor. The members shall serve for terms of four years and until their successors qualify, except that of the members first appointed two shall be appointed for a term of one year, two for terms of two years, and two for terms of three years. All appointed members shall be chosen on the basis of demonstrated interest in the purposes of the Division of Relocation Services. The Board shall advise the Director of Welfare on matters pertaining to the Division. The members shall be residents of the City and shall serve without compensation. (1994 C., § 3.36.565; Ord. No. 56824, § 3, 1974.)

PART XII. YOUTH SERVICES

3.36.580 Created—Duties.

There is hereby created in the Department of Welfare a Division of Youth Services, the general objectives being the improvement of employment and the educational and economic potentials of youths. In furtherance of these purposes the Division shall study, explore, and examine existing and projected needs, problems, resources, and goals, and employment development, recreation, and learning for youths, developed

planning and execution of programs, and assistance designated to aid and abet youth for participation and furtherance of personal and community employment. The division shall:

A. Convene meetings, maintain liaison and encourage cooperation between all agencies, public and private dealing with youths in St. Louis;

B. Provide information on year-round youth needs and youth programs;

C. Serve as referral agency for utilization of voluntary services;

D. Serve as a fund-raising catalyst to augment usual resources applied to youth activities;

E. Accept private gifts and federal grants;

F. Promote public awareness of problems of youths and encourage development of possible solutions for their problems;

G. Seek to eliminate duplication of effort and funds in youth service agency through coordination and communication. (1994 C., § 3.36.580; Ord. No. 56825, § 1, 1974.)

3.36.585 Commissioner.

The Division of Youth Services shall be in charge of a Commissioner of Youth Services appointed by the Director of Welfare. The Commissioner shall be responsible for executing the purposes of the Division of Youth Services and shall appoint employees as necessary in compliance with the Civil Service provision of the Charter and ordinances. (1994 C., § 3.36.585; Ord. No. 56825, § 2, 1974.)

3.36.590 Board.

There shall be a Board of Youth Services consisting of nine members appointed by the Mayor. The members shall serve for terms of four years and until their successors qualify, except that of the members first appointed two shall be appointed for a term of one year, two for terms of two years, and two for terms of three years. All appointed members shall be chosen on the basis of demonstrated interest in the purposes of the Division of Youth Services. The Board shall advise the Director of Welfare on matters pertaining to the Division. The members shall be residents of the City and shall serve without compensation. (1994 C., § 3.36.590; Ord. No. 56825, § 3, 1974.)

PART XIII. HUMAN RESOURCES PLANNING AND DEVELOPMENT OFFICER

3.36.630 Office established.

There is established within the office of the Director of Welfare the position of Human Resources Planning and Development Officer. (1994 C., § 3.36.630; Ord. No. 56823, § 1(part), 1974.)

3.36.635 Appointment.

The Human Resources Planning and Development Officer shall be appointed by the Director of Welfare in compliance with the Civil Service provisions of the Charter and ordinances. The Human Resources Planning and Development Officer shall be responsible to the Director of Welfare for executing the duties of the position and other duties as may be assigned to him by the Director of Welfare. (1994 C., § 3.36.635; Ord. No. 56823, § 1(part), 1974.)

3.36.640 Duties.

The Human Resources Planning and Development Officer shall conduct research and planning, and shall recommend program activities directed toward the development of the human resources of the City to be executed by the divisions of the Department of Welfare, and shall coordinate these programs with other City departments. (1994 C., § 3.36.640; Ord. No. 56823, § 1(part), 1974.)

PART XIV. OFFICE OF CONSUMER AFFAIRS

3.36.680 Established—Supervisor.

There is established an office of consumer affairs, hereafter referred to as "the Office," which shall be in the Department of Welfare under the direction of a supervisor and staff appointed and compensated in accordance with Article XVIII of the Charter. (1960 C., § 36.010; 1994 C., § 3.36.680; Ord. No. 55318, § 1, 1969.)

3.36.685 Citizens' consumer advisory committee.

There shall be a Citizens' Consumer Advisory Committee connected to the office consisting of nine persons, resident in and citizens of the City to be appointed by the Mayor for terms of three years each, but of the first nine appointed, three shall be appointed for a term of one year, three for a term of two years and three for a term of three years after which all appointees shall serve for three years and until their successors are duly appointed and qualified. The members of the

Citizens' Consumer Advisory Committee shall serve without compensation but shall be reimbursed for any reasonable expenses connected with their service. (1960 C., § 36.020.; 1994 C., § 3.36.685; Ord. No. 55318, § 2, 1969.)

3.36.690 Duties.

It shall be the duty of the office to:

A. Plan, make recommendations, conduct research and develop programs for consumer education and protection;

B. Facilitate the exchange and dissemination of information on consumer affairs, in conjunction with municipal agencies, federal and state agencies, commercial interests, private groups and others working to this end;

C. Assist in the coordination of federal, state, and municipal activities relating to consumer affairs;

D. Provide for the dissemination to commercial interests, private groups, agencies and other interested citizens' explanations of state and federal legislation relating to consumer affairs;

E. Appear before governmental departments, agencies and commissions to represent and be heard on behalf of the consumer interests;

F. Assist citizens in the processing of complaints arising under appropriate state and federal legislation. (1960 C., § 36.030; 1994 C., § 3.36.690; Ord. No. 55318, § 3, 1969.)

3.36.695 Development of comprehensive consumer legislation.

Within two years after April 17, 1969, following examinations of comparative laws wherever they may exist and the holding of well noticed public hearings which may, if appropriate, be dispersed among the several City wards, the Supervisor of Consumer Affairs in consultation with the Citizens' Consumer Advisory Committee shall develop and submit an ordinance or ordinances proposing comprehensive consumer legislation for the aid, control and protection of merchants and consumers in their relations and affairs with each other. Such legislation may include:

A. Injunctive power to enforce City ordinances relating to consumer affairs;

B. Ordinances covering fraudulent advertising, home mortgage purchases, usurous credit charges, repair services operating on the premises of citizens;

C. Other matters reasonably related to or considered within the purview of consumer affairs. (1960 C., § 36.040; 1994 C., § 3.36.695; Ord. No. 55318, § 4, 1969.)

3.36.700 Special research projects.

The office shall have the power of conducting special research projects relating to matters of public interest in the field of consumer affairs. In so doing, it shall utilize to the maximum feasible extent the findings of other bodies in similar fields, but shall not be bound by the findings of other bodies. The reports shall be published from time to time as the Supervisor deems necessary. (1960 C., § 36.050; 1994 C., § 3.36.700; Ord. No. 55318, § 5, 1969.)

3.36.705 Private local groups.

The office shall encourage the development of private local groups devoted to the best interest of healthy consumer-merchant relations and shall assist and advise such groups however their formation is derived. (1960 C., § 36.060; 1994 C., § 3.36.705; Ord. No. 55318, § 6, 1969.)

3.36.710 Investigations.

The office shall conduct investigations of alleged fraudulent advertising where noticed or upon being alerted, of charged credit abuses, and other matters reasonably considered within the purview of consumer affairs. If suspected violations of law are discovered, the information of such suspected violations shall be forwarded to the office of the Law Department, or the appropriate state, federal, or other government agency having jurisdiction in such matters. (1960 C., § 36.070; 1994 C., § 3.36.710; Ord. No. 55318, § 7, 1969.)

3.36.715 Representation for consumer interests.

The office shall appear before and represent the interests of the consumer before all regulatory bodies, commissions, and state and federal offices relating to consumer affairs and shall publicize and disseminate all appropriate findings and rulings concerning consumer interests resulting from such representation. (1960 C., § 36.080; 1994 C., § 3.36.715; Ord. No. 55318, § 8, 1969.)

3.36.720 Compensation.

Compensation for the employees of the Office of Consumer Affairs shall be determined by the Civil Service Commission as provided under Article XVIII of the Charter. (1960 C., § 36.090; 1994 C., § 3.36.720; Ord. No. 55318, § 9, 1969.)

PART XV. OFFICE OF THE DISABLED

3.36.730 Established.

There is hereby established the Office of the Disabled as a division of the Department of Welfare. (1994 C., § 3.36.730; Ord. No. 57432, § 1, 1977.)

3.36.735 Commissioner—Appointment—Authority.

The Office of the Disabled as a division of the Department of Welfare shall be in the charge of a Commissioner of the Disabled who shall be appointed by the Director of Welfare. The Commissioner of the Disabled is hereby authorized and directed, pursuant to law, to employ such personnel as may be necessary and reasonable to carry out the provisions of this part and the programs and projects which may hereafter be authorized by law. (1994 C., § 3.36.735; Ord. No. 57432, § 2, 1977.)

3.36.740 Powers and duties.

The Office of the Disabled as a division of the Department of Welfare, in addition to other powers and duties as hereafter may be authorized and imposed by law, shall:

A. Advise and confer with the Mayor, the Board of Aldermen and other city, county, state and federal officials concerning projects and activities for the disabled;

B. Study current patterns and conditions of living of disabled persons and identify such factors as may be beneficial or detrimental to the wholesome and meaningful living of such disabled persons;

C. Develop and/or demonstrate new approaches, techniques and methods which hold promise of substantial contribution towards wholesome and meaningful living of such disabled persons;

D. Develop and/or demonstrate new approaches, methods and techniques for achieving and/or improving coordination of community and governmental services for such disabled persons;

E. Evaluate approaches, techniques and methods which may assist disabled persons to enjoy wholesome and meaningful living and to contribute to the strength and welfare of the community;

F. Prepare and adopt plans, reports, applications and agreements for cooperation with, and receiving assistance and grants from the other governmental agencies, local, state and/or federal, established for such purposes;

G. Work cooperatively with other City departments and agencies in the development of policy and the implementation of programs. (1994 C., § 3.36.740; Ord. No. 57432, § 3, 1977.)

3.36.745 Advisory council—Appointment.

Within ninety days of the effective date of the ordinance codified in this part there shall be established an advisory council on the disabled which shall consist of nine (9) members, at least five (5) of whom shall themselves be disabled. Members of the advisory council shall be appointed by and serve at the pleasure of the Mayor. The five (5) members first appointed shall serve a term of four years each and the four (4) members last appointed shall serve a term of two years. Thereafter, all members shall serve a term of four years. They shall receive no compensation for their services on the advisory council. (1994 C., § 3.36.745; Ord. No. 57432, § 4, 1977.)

3.36.750 Advisory council—Meetings.

Within one week after the members of the first advisory council shall have been appointed, they shall meet at a time and place appointed by the Mayor, and shall by majority vote elect one of the members to act as Chairman, one member to act as Vice-Chairman, and one member to act as secretary. Thereafter, they shall meet at least four times per year and additionally at the request of the Mayor, the Director of Welfare, or the Commissioner of the Disabled. (1994 C., § 3.36.750; Ord. No. 57432, § 5, 1977.)

3.36.755 Advisory council—Quorum—Rules and regulations.

A majority of the members of the advisory council shall constitute a quorum for the conducting of business and shall act by the affirmative vote of a majority of the members present. The council shall make such rules and regulations as are necessary for the proper nominations and election of officers. (1994 C., § 3.36.755; Ord. No. 57432, § 6, 1977.)

3.36.760 Advisory council—Authority and responsibility.

The advisory council shall have the authority and responsibility to keep the Mayor, the Board of Aldermen, the Director of Welfare, and the Commissioner of the Disabled advised as to all matters relating to the welfare of disabled persons residing in the City. It shall, on request of the Mayor, the Board of Aldermen, the Director of Welfare, or the Commissioner of the Dis-

abled, review and make its recommendations on all matters presented to such council. (1994 C., § 3.36.760; Ord. No. 57432, § 7, 1977.)

Chapter 3.38

DEPARTMENT OF HEALTH AND HOSPITALS

Health regulations, see Title 11.

Hospitals, see Title 12.

Charter:

Art. XIII § 14-C Department of health and hospitals

City Counselor Ops.: 8178, 8585, 8769, 9362

Sections:

3.38.010 Director of Health and Hospitals.

3.38.020 Hospital Commissioner.

3.38.030 Assistant Hospital Commissioner.

3.38.040 Health Commissioner.

3.38.050 Services in Division of Health.

3.38.060 Records for Division of Health.

3.38.070 Approval of pay rolls and requisitions.

3.38.010 Director of Health and Hospitals.

The Director of Health and Hospitals shall have those qualifications prescribed by Article XIII Section 14C(a) of the Charter and shall perform those duties as prescribed in Article XIII Section 14C(b) of the Charter and any additional duties as may be prescribed by ordinance and shall have under his jurisdiction the management, control and supervision of all of the business of the Department of Health and Hospitals. (1948 C., Ch. 2, § 85; 1960 C., § 420.010; 1994 C., § 3.38.010; Ord. No. 49758, § 1, 1959.)

City Counselor Ops.: 9533

3.38.020 Hospital Commissioner.

The Director of Health and Hospitals shall appoint a Hospital Commissioner whose duties shall be those prescribed by Article XIII Section 14C (d) of the Charter and any additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 85(a); 1960 C., § 420.020; 1994 C., § 3.38.020; Ord. No. 49758, § 1, 1959.)

For bond, see § 3.26.010

3.38.030 Assistant Hospital Commissioner.

The Hospital Commissioner is authorized to appoint an Assistant Hospital Commissioner, whose duties shall be those prescribed by the Hospital Commissioner, or when directed by the Hospital Commissioner, he shall perform all the duties of the Hospital Commissioner, and he shall have authority to exercise the same power and perform the same duties as given and prescribed by the Charter, and the Hospital Commissioner. The Assistant Hospital Commissioner, when performing the duties and exercising the powers of the Hospital Commissioner, shall be designated as the acting Hospital Commissioner. (1948 C., Ch. 2, § 86; 1994 C., § 3.38.030.)

For bond, see § 3.26.010

3.38.040 Health Commissioner.

The Director of Health and Hospitals shall appoint a Health Commissioner whose duties shall be those prescribed by Article XIII Section 14C (c) of the Charter and any additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 87; 1960 C., § 420.030; 1994 C., § 3.38.040; Ord. No. 49758, § 1, 1959.)

For bond, see § 3.26.010

3.38.050 Services in Division of Health.

There is established in the Division of Health of the Department of Health and Hospitals the following services:

A. Administrative and special services;

B. Preventive medicine services;

C. Health center services;

D. Environmental sanitation services. (1948 C., Ch. 2, § 88; 1960 C., § 421.010; 1994 C., § 3.38.050; Ord. No. 49758, § 1, 1959.)

City Counselor Ops.: 8674, 9485

3.38.060 Records for Division of Health.

The Division of Health shall keep in suitable books a full and correct record of its proceedings and acts. It shall also keep a full and correct account of all expenses incurred by its authority, specifying the amounts, why, when, and how incurred, for what purpose applied, and also a correct account of moneys received by it from whatever source. It shall also keep a book for the registration of physicians who have complied with the ordinances governing the registration of physicians. (1948 C., Ch. 2, § 89; 1960 C., § 421.020; 1994 C., § 3.38.060.)

3.38.070 Approval of pay rolls and requisitions.

All pay rolls and requisitions for supplies or repairs for the Health Commissioner's Office and sanitary section shall be approved and signed by the Health Commissioner (or in his absence by the Assistant Health Commissioner), and all vouchers for accounts against

the Health Commissioner's Office and sanitary sections shall be signed by the Health Commissioner (or in his absence by the Assistant Health Commissioner) and attested by the Clerk of the Health Commissioner, whereupon the Comptroller shall draw his warrant upon the Treasurer for the amount thereof. (1948 C., Ch. 2, § 90; 1960 C., § 421.030; 1994 C., § 3.38.070.)

Chapter 3.40

CITY EMERGENCY MANAGEMENT AGENCY

Prior ordinance history: Ord. 56848

RSMo:

RSMo Ch. 44 (2016) emergency management

Sections:

3.40.010	**Definitions.**
3.40.020	**Agency established.**
3.40.030	**Office expenditures.**
3.40.040	**Director—Duties and responsibilities.**
3.40.050	**Mayor's powers—Prior to emergency.**
3.40.060	**Mayor's powers—Enemy-caused emergency.**
3.40.070	**Director's duties in natural or man-made emergencies.**
3.40.080	**Nonliability of City and workers.**
3.40.090	**Help from other sources.**
3.40.100	**Oath of office.**
3.40.110	**Penalty for violation.**

3.40.010 Definitions.

As used in this chapter, the following terms shall be construed as follows:

A. "Emergency management" means the mitigation, preparation, response, recovery and carrying out of any other related emergency functions, other than functions for which primary responsibility is assigned elsewhere by federal, state or local law or ordinance, to protect the public peace, health and safety, and to preserve lives and property in the City during any emergency resulting from enemy attack, sabotage or other hostile action, or from any flood, drought, fire, tornado, hurricane, earthquake, storm, air pollution or other catastrophe in or near the City, and involving imminent or actual peril to life and property of the City.

B. "Enemy-caused emergency" means any state of emergency caused by actual or impending attack, sabotage or other hostile action, anywhere within the United States, and involving imminent peril to lives and property in the City.

C. "Man-made emergency" means any state of emergency caused by man, either by accident or premeditation, when such act or acts involve imminent peril to lives and property in the City. This form of emergency is not in conflict with Subsection B of this section.

D. "Natural emergency" means any state of emergency caused by an actual or impending flood, drought, tornado, fire, hurricane, earthquake, storm, air pollution or other catastrophe in or near the City, and involving imminent peril to lives and property in City. (1994 C., § 3.40.010; Ord. No. 60588, § 2, 1987.)

3.40.020 Agency established.

There is hereby established within the Department of Public Safety a City Emergency Management Agency. This City Emergency Management Agency shall consist of:

A. A City Emergency Management Agency Supervisor, who shall be appointed by the Director of Public Safety in accordance with Article XVIII of the Charter. The Supervisor shall be the executive head of the City Emergency Management Agency, and shall be responsible for carrying out the Emergency Management program of the City. The Supervisor shall receive a salary fixed in accordance with ordinance provisions. The Supervisor shall coordinate the activities of all organizations for emergency management within the City and shall maintain liaison with and cooperate with emergency management agencies and organizations of other governmental units both within and without the State of Missouri, and of the federal government, and shall have such additional authority, duties and responsibilities as may be authorized under this chapter, appropriate state and federal legislation;

B. A City Emergency Management Agency staff, to consist of such technical, clerical, stenographic, and other personnel as deemed necessary by the Supervisor. The Supervisor may employ such personnel, and when they are to be compensated, may make such expenditures within the appropriations therefor, or from other funds made available for Emergency Management, as may be necessary to carry out the purposes of this chapter. In all applicable cases, the system of personnel

administration in the City Emergency Management Agency shall be in accordance with the merit system requirements of Article XVIII of the Charter, as supplemented by ordinance rules or regulations;

C. Such other volunteer advisory committees as may be created by the Mayor or Supervisor for the evaluation of technical, professional or other phases of the work of the City Emergency Management Agency; and which may provide advisory assistance on any matters pertaining to the City of St. Louis, Emergency Management Agency. (1994 C., § 3.40.020; Ord. No. 64562, § 2, 1998; Ord. No. 60588, § 3, 1987.)

3.40.030 Office expenditures.

Appropriate office space, furniture, equipment and supplies as required shall be provided for the City Emergency Management Agency. Expenditures for those purposes, within the appropriation therefor, shall be made only on the authority of the Director. The Director shall also, within the limits of the appropriations therefor, establish a primary and one or more backup control centers as he deems necessary to serve the overall emergency missions. (1994 C., § 3.40.030; Ord. No. 60588, § 4, 1987.)

3.40.040 Director—Duties and responsibilities.

The Director shall have general direction and control of the City Emergency Management Agency, and shall be responsible for carrying out the provisions of this chapter. In so carrying out the provisions of this chapter, the Director is expressly authorized to cooperate, insofar as permitted by other appropriate legislation, with the federal government, the government of Missouri and its subdivisions, with other states and their subdivisions, and with private agencies, in all matters pertaining to Emergency Management in St. Louis, Missouri. (1994 C., § 3.40.040; Ord. No. 60588, § 5, 1987.)

3.40.050 Mayor's powers—Prior to emergency.

Prior to an emergency as defined in this chapter, the Mayor shall have the following powers:

A. To make, amend and rescind the necessary orders, rules and regulations to carry out the provisions of this chapter within the limits of the authority conferred upon him herein, with due consideration to be given to the plans and powers of the federal government, the government of Missouri and other public and private agencies and organizations empowered to act in all types of disasters;

B. To prepare Comprehensive Plans and programs for the City Emergency Management Agency in all types of emergencies, such plans and programs to be integrated into and coordinated with the plans and programs of the federal government, of the government of Missouri and of other public and private agencies and organizations empowered to act in either enemy-caused, natural or man-made caused emergencies or any combination thereof;

C. To establish, within the limits of funds available, a public warning system, composed of sirens, horns or other acceptable warning devices;

D. To establish and carry out recruitment and training programs as may be necessary to develop an adequate qualified capability;

E. To conduct drills, exercises and similar programs as may be necessary to develop a well-trained and fully prepared Emergency Management capability;

F. To make such studies and surveys, of the industries, resources and facilities of this City as he deems necessary to ascertain their capabilities for Emergency Management and to plan for the most efficient emergency use thereof;

G. On behalf of the City, to enter into mutual aid arrangements with surrounding communities, both in the States of Missouri and Illinois;

H. To delegate any administrative authority vested in him under this chapter, and to provide for the subdelegation of any such authority;

I. To take any other action, proper and lawful under his authority to prepare for all types of disasters. (1994 C., § 3.40.050; Ord. No. 60588, § 6, 1987.)

3.40.060 Mayor's powers—Enemy-caused emergency.

In the event of any actual enemy-caused emergency, the Mayor may exercise the power to enforce all rules and regulations relating to Emergency Management and act under the authority of current ordinances of the City of St. Louis, current statutes of the State of Missouri and the applicable sections of the United States Code Annotated. The Mayor may also take control of any means of transportation and communications, any facilities including buildings and plants, and exercise all powers necessary to secure the safety and protection of the general population. In exercising such powers, he shall be guided by regulations, laws and orders issued by the federal government, the State of Missouri and the City of St. Louis Emergency Man-

agement Agency and shall take no action contrary to orders which may be issued by the Governor under similar emergency powers. (1994 C., § 3.40.060; Ord. No. 60588, § 7, 1987.)

3.40.070 Director's duties in natural or man-made emergencies.

In the event of any natural or man-made emergency as proclaimed by the Mayor of St. Louis, the Director of Emergency Management with the approval of the Mayor, and acting under his instructions, shall coordinate in every way proper the activities of the City Emergency Management Agency. He is specifically charged in such emergency with the collection, evaluation, and dissemination of information to all agencies, both public and private participating in the emergency. He shall, as the Director, have the power to recommend appropriate action, but he shall not otherwise exercise control over the participating agencies. He shall also recommend to the Mayor the allocation and distribution of any funds received from the federal or state governments or from any other source to help alleviate distress and aid in restoring normal conditions. (1994 C., § 3.40.070; Ord. No. 60588, § 8, 1987.)

3.40.080 Nonliability of City and workers.

Neither the City of St. Louis nor any officer or member of the City Emergency Management Agency shall be liable for personal injury or property damage sustained by any person appointed or acting as a volunteer worker or member of any agency engaged in disaster activity prior to or during any type of disaster, nor shall the City or any such officer or member be liable for the death or injury of any person or damage to property resulting from such Emergency Management activity. (1994 C., § 3.40.080; Ord. No. 60588, § 9, 1987.)

3.40.090 Help from other sources.

Whenever the federal government or the State of Missouri, or any person, firm or corporation shall offer to the City any services, equipment, supplies, materials or funds by way of gift, grant or loan for purposes of Emergency Management, the Mayor may accept such offer and may authorize the Director of Emergency Management to receive same, subject to the terms of the offer and the rules and regulations, if any, of the person, firm, corporation or agency making the offer. (1994 C., § 3.40.090; Ord. No. 60588, § 10, 1987.)

3.40.100 Oath of office.

As established by the statutes of the State of Missouri, all persons employed by or associated with the City Emergency Management Agency within the City of St. Louis will be required to comply with RSMo 44.115, which states as follows:

"No person shall be employed or associated in any capacity in any organization established under Sections 44.010 to 44.130 who advocates or has advocated a change by force or violence in the constitutional form of the Government of the United States or in this State or the overthrow of any government in the United States by force or violence, or has been convicted of or is under indictment or information charging any subversive act against the United States. Each person who is appointed to serve in an organization for civil defense shall, before entering upon his duties, take an oath in writing before a person authorized to administer oaths in this State, which oath shall be substantially as follows:

'I _____, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States and the Constitution of the State of Missouri against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties upon which I am about to enter. And I do not advocate, nor am I a member of any political party or organization that advocates the overthrow of the Government of the United States or of this State by force or violence; and that during such a time as I am a member of the (City Emergency Management Agency), I will not advocate nor become a member of any political party or organization that advocates the overthrow of the government of the United States or of this state by force or violence.'" (1994 C., § 3.40.100; Ord. No. 60588, § 11, 1987.)

3.40.110 Penalty for violation.

Any person or persons violating any of the provisions of this chapter in the City of St. Louis, or who shall fail to carry out any of the provisions of this chapter or to comply therewith, or with any of the orders, rules or regulations made under the authority hereof, shall, upon conviction, be punished by a fine not exceeding five hundred dollars ($500.00), or by imprisonment in the City Workhouse not exceeding

ninety (90) days, or both. (1994 C., § 3.40.110; Ord. No. 60588, § 12, 1987.)

Chapter 3.42

HUMAN DEVELOPMENT CORPORATION

Sections:

3.42.010 **Designated as Community Action Agency.**

3.42.020 **Mayor's duties for acceptance.**

3.42.010 Designated as Community Action Agency.

The Human Development Corporation of St. Louis is designated as the Community Action Agency for the City. (1994 C., § 3.42.010; Ord. No. 55171, § 1, 1968.)

3.42.020 Mayor's duties for acceptance.

The Mayor is authorized and directed to execute and submit any and all forms or documents as may be required by the Office of Economic Opportunity of the United States, or any other agency or office of the federal government, to be submitted in order to provide for the acceptance and recognition of the designation of the Human Development Corporation of St. Louis as the Community Action Agency for the City. (1994 C., § 3.42.020; Ord. No. 55171, § 2, 1968.)

Chapter 3.43

INFORMATION TECHNOLOGY SERVICES AGENCY

Sections:

3.43.010 **Established.**

3.43.020 **Director—Appointment—Staff.**

3.43.030 **Functions and responsibilities of agency.**

3.43.040 **Funding.**

3.43.050 **Minority and women owned business participation.**

3.43.010 Established.

There is hereby established an Information Technology Services Agency, hereinafter referred to as the "Agency." (1994 C., § 3.43.010; Ord. No. 65798, § 1, 2003.)

3.43.020 Director—Appointment—Staff.

The Agency shall be headed by an Agency Director, who shall be appointed by the Mayor and approved by the Board of Estimate and Apportionment for a term to run concurrently with the Mayor's term of office, or until his successor is appointed and qualified. The Agency Director shall be responsible directly to the Mayor. The Agency Director shall oversee the work of the Agency and shall appoint and supervise the Agency's personnel pursuant to the Civil Service provisions of the Charter and ordinances. The Agency Director and staff shall receive compensation in accordance with ordinance provisions.

The Director of the Information Technology Services Agency should possess proven management and strategic planning skills with broad and extensive technical knowledge and experience in information technology, services and systems, understanding of key issues in information management, marketing and business principles, extensive knowledge and experience in connection, transference and transitioning of various types and forms of information and data systems and platforms into a comprehensive and integrated system, as well as demonstrated planning, organizational, and management skills. The qualifications for the Director of Information Technology shall include, but not be limited to, an appropriate educational background in information systems, relevant information technology expertise, strong management skills and experience in managing a large, multi-function information technology agency, department or company. The Director shall also have financial and administrative experience, leadership ability, innovation, flexibility and effective communications skills. (1994 C., § 3.43.020; Ord. No. 65798, § 2, 2003.)

3.43.030 Functions and responsibilities of agency.

The Agency shall be responsible for the planning, development, coordination and implementation of timely, reliable, cost-effective municipal technology and information services for use by City government and City employees, citizens and businesses. The Agency shall assume the functions, rights, powers, responsibilities and duties of the Information System Services personnel of the Budget Division.

Within 180 days of the effective date of this chapter, the Director of the Information Technology Services Agency shall submit to the Board of Estimate and Apportionment for its approval and to the Board of Aldermen for its approval by resolution subsequent to a hearing by the Public Utilities Committee or its suc-

cessor a comprehensive report outlining proposed operational policies and including an integration plan for various City data and informational systems into an integrated and coordinated system, with an implementation timetable and a management structure for the new Agency.

Such report shall also detail proposed policies for the security and management of informational databases and other electronic file and information systems of the City of St. Louis.

For the first year after the effective date of this chapter, the Agency Director shall submit quarterly reports outlining the progress of the development and implementation of such plan and policies to the Board of Estimate and Apportionment for review and approval. Thereafter, on an annual basis concurrent with the submission of the budget report, the Director of the Information Technology Services Agency shall submit a comprehensive report of the state of the City's information infrastructure and operations to the Board of Estimate and Apportionment, along with updated operational policies for the Agency, which shall be subject to approval by the Board of Estimate and Apportionment.

The Board of Estimate and Apportionment shall serve as the final arbiter in any dispute between or among offices, agencies and departments of City government with regard to the implementation of the plans and policies of the Information Technology Services Agency. (1994 C., § 3.43.030; Ord. No. 65798, § 3, 2003.)

3.43.040 Funding.

As recommended by the Board of Estimate and Apportionment, Ordinance No. 65500 is hereby amended to provide funds in the amount of Two Million Two Hundred Sixty-Six Thousand Four Hundred Twenty-Two Dollars ($2,266,422.00) for the Information Technology Services Agency from funds previously appropriated to the Division of the Budget for the fiscal year ending June 30, 2003 as detailed in Exhibit A. (1994 C., § 3.43.040; Ord. No. 65798, § 4, 2003.)

3.43.050 Minority and women owned business participation.

The Information Technology Services Agency hereby adopts participation goals of 25% Minority Business Enterprises and 5% Women Business Enterprises, consistent with the Mayor's Executive Order on Minority and Women's Business Participation. The Agency will include information about minority and women's business participation in the Agency's annual report to the Board of Estimate and Apportionment. (1994 C., § 3.43.050; Ord. No. 65798, § 5, 2003.)

Chapter 3.44

CIVIL RIGHTS ENFORCEMENT AGENCY

Prior ordinance history: Ord. 62710

Sections:

3.44.010	**Definition of terms.**
3.44.020	**Creation and establishment of the Civil Rights Enforcement Commission and Civil Rights Enforcement Agency.**
3.44.030	**Composition of the Commission.**
3.44.040	**Function and duties of the Commission.**
3.44.050	**Organization.**
3.44.060	**Powers and duties of the Commission.**
3.44.070	**Powers and duties of the Executive Director.**
3.44.080	**Prohibited discriminatory practices.**
3.44.090	**Agency action—Preliminary matters.**
3.44.100	**Administrative proceedings subsequent to issuance of charges.**
3.44.110	**Judicial review.**
3.44.120	**Enforcement of Commission orders.**
3.44.130	**Representation of complainant where election is made pursuant to RSMo 213.076.1.**
3.44.140	**Savings clause.**
3.44.150	**Penalty.**
3.44.160	**Construction of this chapter.**

3.44.010 Definition of terms.

As used in this chapter, unless a different meaning clearly appears from the context in which used, the following terms and phrases shall be taken to have the meaning ascribed to them in this section, to wit:

A. "Academic, professional or vocational school" includes any person who trains and teaches individuals to engage in any trade, business, profession, calling or vocational pursuit.

B. "Act" means the federal Fair Housing Act, 42 U.S.C. 3601 et seq.

C. "Age" means an age of forty or more years but less than seventy years, except that it shall not be an unlawful employment practice for an employer to require the compulsory retirement of any person who has attained the age of sixty-five and who, for the two-year period immediately before retirement, is employed in a bona fide executive or high policy-making position, if such person is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit sharing, savings or deferred compensation plan, or any combination of such plans, of the employer, which equals, in the aggregate, at least forty-four thousand dollars.

D. "Agency" means the St. Louis Civil Rights Enforcement Agency.

E. "Aggrieved person" includes any person who:

1. Claims to have been injured by a discriminatory housing practice; or

2. Believes that such person will be injured by a discriminatory housing practice that is about to occur.

F. "Commission" means the St. Louis Civil Rights Enforcement Commission.

G. "Commissioner" means a member of the St. Louis Civil Rights Enforcement Commission.

H. "Complainant" shall mean a person who has filed a complaint with the Agency alleging that another person has engaged in a prohibited discriminatory practice, or a person who has joined in such a complaint after its initial filing.

I. "Conciliation" means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent and the Commission and/or the Commission's agent.

J. "Conciliation agreement" means a written agreement setting forth the resolution of the issues in conciliation.

K. As used in Section 3.44.080C.2.c of this chapter, the term "covered multifamily dwelling" means:

1. Buildings consisting of 4 or more units if such buildings have one or more elevators; and

2. Ground floor units in other buildings consisting of 4 or more units.

L. "Director" means the Executive Director of the St. Louis Civil Rights Enforcement Agency.

M. "Disability" or "handicap" means, with respect to a person:

1. A physical or mental impairment which substantially limits one or more of such person's major life activities;

2. A record of having such impairment; or

3. Being regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance (as defined by RSMo 195.010); however, a person may be considered to be disabled if that person:

a. Has successfully completed a supervised drug rehabilitation program and is no longer engaging in the illegal use of, and is not currently addicted to, a controlled substance or has otherwise been rehabilitated successfully and is no longer engaging in such use and is not currently addicted;

b. Is participating in a supervised rehabilitation program and is no longer engaging in illegal use of controlled substances; or

c. Is erroneously regarded as currently illegally using, or being addicted to, a controlled substance.

N. "Discriminatory housing practice" or "discriminatory practice" means an act that is unlawful under Section 3604, 3605, 3606, or 3617 of the Fair Housing Act, or is otherwise prohibited by the provisions of this chapter.

O. "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

P. "Employer" included any person who employs six or more persons exclusive of that person's parents, spouse or children.

Q. "Employment agency" includes any person undertaking for compensation to procure opportunities to work or to procure, recruit, refer or place employees.

R. "Familial status" means one or more individuals (who have not attained the age of 18 years) being domiciled with:

1. A parent or another person having legal custody or such individual or individuals; or

2. The designee of such parent or other person having such custody, with the written permission of such parent or other person;

The protection afforded by this chapter against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

S. "Family" includes a single individual.

T. "Financial institution" means bank, banking organization, mortgage company, insurance company, investment company or other lender to whom application is made for financial assistance for the purchase, lease, acquisition, construction, rehabilitation, repair, maintenance, or improvement of real property, or an individual employed by or acting on behalf of or as agent of any of these.

U. "Gender identity or expression" means an inner sense of being a specific gender, or the expression, intended or unintended, of a gender identity by verbal statement, appearance, or mannerisms, or other gender-related characteristics of an individual with or without regard to the individual's designated sex at birth.

V. As used in Section 33.44.080C.3.c of this chapter, the term "housing for older persons" means housing:

1. Provided under any state or federal program that the Secretary of the United States Department of Housing and Urban Development has determined is specifically designed and operated to assist elderly persons;

2. Intended for, and solely occupied by, persons 62 years of age or older; or

3. Intended and operated for occupancy by at least one person 55 years of age or older per unit:

a. In which at least eighty percent of the units are occupied by at least one person 55 years of age or older; and

b. For which management has published and adheres to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.

4. That complies with rules issued by the Secretary for verification of occupancy, which shall:

a. Provide for verification by reliable surveys and affidavits; and

b. Include examples of the types of policies and procedures relevant to a determination of compliance with the requirement of Subsection V.3.b of this section. Such surveys and affidavits shall be admissible in administrative and judicial proceedings for the purposes of such verification.

5. Housing shall not fail to meet the requirements for housing for older persons by reason of:

a. Persons residing therein as of September 13, 1988 who do not meet the age requirements set out in Subsection V.2 or V.3 of this section, provided that new occupants of such housing do meet said age requirements; or

b. Unoccupied units, provided that such units are reserved for persons who meet the relevant age requirement of Subsection V.2 or V.3 of this section.

W. "Individual" means one or more individuals.

X. "Labor organization" includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment.

Y. "Person" includes one or more individuals, partnerships, associations, unincorporated organizations, corporations, mutual companies, joint stock companies, legal representatives, trusts, trustees, labor organizations, fiduciaries, trustees in bankruptcy, and/or receivers.

Z. "Places of public accommodation" means all places or businesses offering or holding out to the general public services or facilities for the comfort, health and safety of such general public, including, but not limited to, public places providing food, shelter, recreation and amusement.

AA. "Prevailing party" has the same meaning as such term has in 42 U.S.C. Section 1988 and Section 802(o) of the Act.

BB. "Real estate broker" or "real estate salesman" means any person, whether licensed or not, who, on behalf of others, for a fee, commission, salary or other valuable consideration, or who with the intention or the expectation of receiving or collecting the same, lists, sells, purchases, exchanges, rents or leases real estate, or the improvement thereon, including options, or who negotiates or attempts to negotiate on behalf of others such an activity; or who advertises or holds himself out as engaged in such activities; or who negotiates or attempts to negotiate on behalf of others, a loan secured by mortgage or other encumbrance upon a transfer of real estate, or who is engaged in the business of charging an advance fee or contracting for collection of a fee in connection with a contract whereby he undertakes to promote the sale, purchase, exchange, rental or

lease of real estate through its listing in a publication issued primarily for such purpose; or an individual employed by or acting on behalf of any of these.

For the purpose of this section, a person shall be deemed to have engaged in the activities set out above if:

1. The person has, within the preceding twelve (12) months, participated as a principal in three (3) or more transactions involving such activities; or

2. The person has, within the preceding twelve (12) months, participated as agent, other than in connection with the person's own personal residence, in two (2) or more transactions involving such activities; or

3. The person is the owner of any dwelling designed or intended for occupancy by, or occupied by, five (5) or more families.

CC. "Realty" includes real estate, lands, buildings, structures, housing accommodations, dwellings, tenements, leaseholds, cooperatives, condominiums, and hereditaments, corporeal or incorporeal, or any interest in the above.

DD. "Respondent" shall mean a person or other entity who is alleged to have engaged in a prohibited discriminatory practice in a complaint filed with the Agency, or a person or other entity who has been substituted for the originally named respondent, or a person or other entity who has been added as a party respondent, subsequent to the initial filing of the complaint, pursuant to investigation conducted by the Agency; provided, however, that substituted or added persons or entities shall be notified as required in Section 810(a) of the Fair Housing Act.

EE. "Secretary" means the Secretary of Housing and Urban Development.

FF. "Source of income" means the point or form of the origination of legal gains of income accruing to a person in a stated period of time; from any occupation, profession or activity, from any contract, agreement or settlement, from federal, state or local payments, including Section 8 or any other rent subsidy or rent assistance program, from court ordered payments or from payments received as gifts, bequests, annuities or life insurance policies.

GG. "State" means any of the several states, the District of Columbia, the Commonwealth of Puerto Rico, or any of the territories and possessions of the United States.

HH. "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (1994 C., § 3.44.010; Ord. No. 69953, § 1, 2-18-2015; Ord. No. 68715, § 1, 7-13-2010; Ord. No. 67119, § 2, 2006; Ord. No. 66088, § 2, 2003.)

3.44.020 Creation and establishment of the Civil Rights Enforcement Commission and Civil Rights Enforcement Agency.

A. There is hereby established a St. Louis Civil Rights Enforcement Agency to be composed of a staff headed by an Executive Director and an advisory and quasi-judicial body known as the St. Louis Civil Rights Enforcement Commission.

B. The Executive Director shall be the chief executive officer of the Agency and shall be an ex officio member of the Commission. The Executive Director shall be appointed by the Mayor and shall serve at his pleasure.

C. It is the intent of this chapter to grant to the St. Louis Civil Rights Enforcement Commission and St. Louis Civil Rights Enforcement Agency all of the authority to enforce the provisions of RSMo Ch. 213, which may be exercised by the Commission and Agency pursuant to RSMo 213.020.3 and 213.135. (1994 C., § 3.44.020; Ord. No. 67119, § 3, 2006; Ord. No. 66088, § 3, 2003.)

3.44.030 Composition of the Commission.

The Commission shall consist of thirteen (13) members, one of whom shall be the Chairman of the Legislation Committee of the Board of Alderman. The other twelve (12) members shall be appointed by the Mayor, with the advice and consent of the Board of Aldermen. The terms of office of each member shall be for three (3) years. All members shall serve without compensation. (1994 C., § 3.44.030; Ord. No. 69692, § 1, 3-5-2014; Ord. No. 67119, § 4, 2006; Ord. No. 66088, § 4, 2003.)

3.44.040 Function and duties of the Commission.

A. The Commission shall act in an advisory capacity to the Mayor, the Board of Aldermen and the Director for the purposes of furthering amicable relations among the various segments of the population, which together comprise the citizenry of the City of St. Louis; to help preserve and further the good name of St. Louis for tolerance and fair play and promote better relations among its people; to help make it possible for each citizen, regardless of race, color, religion, sex, age,

disability, marital status, familial status, sexual orientation, gender identity or expression, national origin or ancestry, or legal source of income to develop talents and abilities without limitation; and to aid in permitting the community to benefit from the fullest realization of its human resources. In order to accomplish the objectives herein set out, the Commission shall advise and confer with the Mayor and other officers of the City on problems affecting human and inter-group relations; make studies, surveys and investigations to provide accurate data for orderly and constructive community development, and to recommend such measures as are deemed necessary to carry out the objectives for which the Commission has been created; consult with and obtain cooperation and coordinated effort on the part of all agencies, both private and public, which function in the field of human relations, schools, law enforcement agencies, welfare organizations, youth and similar groups; utilize the resources of individuals and groups toward the improvement of inter-group relations; enlist all potential community forces in an effort to make more secure and to extend democratic rights, opportunities and practices; influence and encourage community support for educational programs; and where appropriate, draft, propose or support legislation designed to: (a) combat those misconceptions, prejudices and untruths which tend to set group against group; (b) reduce tensions created by ignorance and bigotry; and (c) eliminate discriminatory practices arising from prejudice.

B. The Commission shall review the record made in a contested case before a hearing officer, consider the recommended findings of fact, conclusions of law and order of said hearing officer and shall thereafter accept or amend the recommended findings of fact, conclusions of law and order. Such action may be taken by a panel of not less than three members of the Commission, and any order made by such panel shall become the final order of the Commission. Neither the retention of hearing officers pursuant to Section 3.44.070 nor the appointment of such panel shall be construed as a delegation or contracting out of the Commission's decision-making authority to a non-governmental authority in violation of 24 C.F.R. 115.202(f). In any contested case, the final determination shall be made solely by the Commission. (1994 C., § 3.44.040; Ord. No. 68715, § 2, 7-13-2010; Ord. No. 67119, § 5, 2006; Ord. No. 66088, § 5, 2003.)

3.44.050 Organization.

The Commission shall elect its Chairman from among its members and create and fill such other offices as it may determine. The term of the Chairman shall be for two years. The Chairman may be re-elected to a second two-year term. No Chairman shall serve more than two consecutive two-year terms. The Commission shall hold at least one regular meeting every 3 months. It shall adopt rules for the transaction of business and shall keep a record of its resolutions, transactions and findings. (1994 C., § 3.44.050; Ord. No. 67119, § 6, 2006; Ord. No. 66088, § 6, 2003.)

3.44.060 Powers and duties of the Commission.

The Commission is hereby empowered:

A. To recommend action to safeguard all individuals within the jurisdiction from discrimination because of race, marital status, familial status, sexual orientation, gender identity or expression, sex, color, age, religion, disability, national origin or ancestry, or legal source of income;

B. Upon recommendation of the Director, to accept grants, gifts, or bequests, public or private, to help finance the activities of the Commission or Civil Rights Enforcement Agency and to enter into cooperative arrangements with other jurisdictions or agencies for the production and dissemination of educational materials and/or programs;

C. To enact by a majority vote of its members such rules and regulations as it may deem necessary for governance of the Commission and to carry out the functions assigned to it hereunder. Such rules and regulations shall be signed by the Chairman and attested to by the Director. Once so signed and attested, rules and regulations promulgated by the Commission shall be transmitted to the Missouri Commission on Human Rights for review. Upon approval by the Missouri Commission, a copy of said rules and regulations shall be filed with the Register of the City of St. Louis;

D. To render to the Mayor and the Board of Aldermen a full written report of all of its activities and of its recommendations on an annual basis;

E. To advise and consult with the Civil Service Commission and local offices controlled by state statute to effectuate the policies of this chapter and applicable federal laws;

F. To appoint a panel composed of not less than three members of the Commission, or to act as the Commission as a whole, to review the record made

before a hearing officer in a contested hearing, to review that hearing officer's proposed findings of fact, conclusions of law and order, and to accept or amend such proposed findings of fact, conclusions of law and order, which shall become a final order of the Commission; and

G. To issue such affirmative orders in contested cases as authorized by state statute. (1994 C., § 3.44.060; Ord. No. 68715, § 3, 7-13-2010; Ord. No. 67119, § 7, 2006; Ord. No. 66088, § 7, 2003.)

3.44.070 Powers and duties of the Executive Director.

The Executive Director is hereby empowered:

A. To provide for execution within the City of St. Louis of the policies embodied in this chapter, the Federal Civil Rights Act of 1964, as amended, the Federal Fair Housing Act of 1968, as amended and RSMo Ch. 213;

B. To receive, initiate, investigate, make probable cause findings with regard to, and make recommendations concerning, violations of equal employment, fair housing and/or public accommodation provisions of RSMo Ch. 213, as authorized therein, and/or of ordinances, orders, or resolutions forbidding discrimination which have been adopted or enacted by the City;

C. Issue subpoenas to compel the attendance of witnesses and the production of evidence relevant to the matter in question for investigatory and determinative purposes and to enforce such subpoena in Circuit Court;

D. To write, edit and produce educational materials and to arrange, sponsor, promote and/or participate in educational programs intended to reduce or eliminate bias or discrimination against persons or groups based upon the race, color, sex, disability, national origin, ancestry, familial status or size, religion or sexual orientation, gender identity or expression, or legal source of income of such person or group;

E. To enter into deferral or other cooperative working agreements with the United States Equal Employment Opportunity Commission, United States Department of Housing and Urban Development, Missouri Commission on Human Rights, and/or any other federal, state or local agency which is empowered to take action, enter into agreements, or make grants for the purpose of reducing or eliminating discrimination.

F. To refer a matter under its jurisdiction to the Missouri Commission on Human Rights for initial action or review;

G. Should a finding of probable cause be made and the Director be unable to successfully conciliate the complaint, to issue administrative charges of violation of this chapter;

H. To recommend to the Commission acceptance of grant agreements, gifts and bequests;

I. To hire attorneys to act as hearing officers to hold hearings on charges issued by the Director;

J. Where a hearing is held before the Commission on a charge issued by the Director, to present evidence and testimony before the Commission relative to such charge;

K. To refer potential ordinance violations to the City Counselor for prosecution in municipal court;

L. If the Director determines at any time subsequent to filing of a complaint that prompt judicial action is necessary to effectuate the purposes of the equal employment, fair housing or public accommodation provisions of RSMo Ch. 213 and/or of ordinances, orders or resolutions forbidding discrimination which have been adopted or enacted by the City, the Director may authorize the City Counselor to file a civil action seeking issuance of an appropriate temporary restraining order or other injunctive relief. Upon receiving notice of such authorization, the City Counselor shall promptly file and maintain such action in the Missouri Circuit Court. The filing of such an action shall in no way affect or interfere with the initiation of a complaint or continuation of administrative proceedings thereon, pursuant to the provisions of this chapter;

M. To delegate any of his powers or duties provided for by this or any other ordinance to one or more staff employees of the Agency, except that (a) all charges referred to the Commission for hearing must be signed by the Director and (b) all subpoenas issued pursuant hereto must also be signed by the Director. (1994 C., § 3.44.070; Ord. No. 68715, § 4, 7-13-2010; Ord. No. 67119, § 8, 2006; Ord. No. 66088, § 8, 2003.)

3.44.080 Prohibited discriminatory practices.

A. *Generally.* Discriminatory practices, as defined and established by this section, are prohibited. Any person engaging in a prohibited discriminatory practice shall be guilty of an ordinance violation, which shall be punishable in the manner set out in Section 3.44.150.

B. *Discrimination in Employment.* It shall be a prohibited discriminatory employment practice:

1. For an employer to fail or refuse to hire, to discharge or otherwise to discriminate against any individual with respect to compensation or the terms, conditions or privileges of employment, because of race, color, age, religion, sex, familial status, disability, sexual orientation, gender identity or expression, national origin or ancestry.

2. For a labor organization to exclude or expel from membership, or otherwise to discriminate against any applicant or member, because of race, color, age, religion, sex, familial status, disability, sexual orientation, gender identity or expression, national origin or ancestry of any applicant or member.

3. For an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against any individual because of race, color, age, religion, sex, familial status, disability, sexual orientation, gender identity or expression, national origin or ancestry of said individual.

4. For an employer, labor organization or employment agency to print or circulate or cause to be printed or circulated, any statement, advertisement or publication, or to make any inquiry in connection with prospective employment, which expresses directly or indirectly any preference, limitation, specification or discrimination because of race, color, age, religion, sex, familial status, sexual orientation, gender identity or expression, disability, national origin or ancestry, unless based upon a bona fide occupational qualification.

5. Notwithstanding Subsections B.1, 2, 3 and 4 of this section, the age prohibition shall be limited to individuals who are at least forty (40) years of age, but less than seventy years of age.

6. For an academic, professional or vocational school to exclude or expel from enrollment, or otherwise to discriminate against any applicant or student, because of the race, color, religion, familial status, disability, sexual orientation, gender identity or expression, national origin or ancestry of said applicant or student.

7. For an academic, professional or vocational school to or circulate or cause to be printed or circulated, a statement, advertisement or publication, or to use any form of application for admission to said school, or to make any inquiry in connection with prospective enrollment in said school, which expresses directly or indirectly any preference, limitation, specification, or discrimination because of race, color, religion, sexual orientation, gender identity or expression, familial status, disability, national origin or ancestry.

8. It shall not be an unlawful employment practice for a school, college, university or other educational institution which is, in whole or in substantial part, owned, supported, controlled or managed by a particular religion, or by a particular religious corporation, association, or society, if the curriculum of such school, college, university or other educational institution is substantially directed toward the propagation or teaching of a particular religion, for such school, college, university or educational institution to consider the religion of an applicant in making a hiring decision for a teaching or counseling position, a professorship, or a position involving supervision of teachers, counselors or professors.

9. Nothing contained in this chapter shall be interpreted to require any employer, employment agency, labor organization, or joint labor management committee subject to this chapter to grant or accord preferential treatment to any individual or group because of the race, color, national origin or ancestry of such individual or group because or on account of an imbalance which may exist with respect to the total number or percentage of persons of any race, color, religion, sex, sexual orientation, gender identity or expression, familial status, disability, national origin or ancestry employed by any employer, referred or classified for employment by any employment agency or labor organization, admitted to membership or classified by any labor organization, or admitted to, or employed in, any apprenticeship or other training program, in comparison with the total number or percentage of persons of such race, color, religion, sexual orientation, gender identity or expression, familial status, disability, national origin or ancestry in this community, or in the available work force in this community.

10. Employer, employment agency, labor organization or their employees, agents or members thereof, to directly or indirectly advertise or in any other manner indicate or publicize that individuals of any particular age, race, creed, color, sexual orientation, gender identity, national origin, religion or disability are unwelcome, objectionable, not acceptable or not solicited for employment or membership unless based on the nature of the occupation.

C. *Discrimination in Provision of Housing or Realty.*

1. *Prohibited Discriminatory Housing or Realty Practices.* It shall be a prohibited housing or realty practice and shall constitute a discriminatory housing practice:

a. For any person, including, without limitation, any real estate broker, salesman or agent, or any employee thereof, to discriminate against any individual because of race, color, religion, sex, sexual orientation, gender identity or expression, familial status, legal source of income, disability, national origin or ancestry, with respect to the use, enjoyment or transfer, or prospective use, enjoyment or transfer, of any interest whatsoever in realty, or with respect to the terms, conditions, privileges or services granted or rendered in connection therewith, or with respect to the making or purchasing of loans for the purchase or maintenance of residential real estate or loans in the secondary market, or the provision of other financial assistance, or with respect to the terms, conditions, privileges or services granted or rendered in connection with any interest whatsoever in realty, or with respect to the making of loans secured by residential real estate;

b. For any person, including, without limitation, any banking, money lending, credit securing or other financial institution, or any officer, agent or employee thereof, to discriminate against any individual because of race, marital status, familial status, color, religion, sex, sexual orientation, gender identity or expression, disability, national origin or ancestry, with respect to the granting or withholding of credit or financial assistance, or the extending or renewing of credit or financial assistance, or modifying of rates, terms, conditions, privileges or other provisions of credit or financial assistance, or services retained or rendered, in connection with the transfer or prospective transfer of any interest whatsoever in realty, or in connection with the construction, repair, improvement or rehabilitation of realty;

c. For any real estate broker, salesman or agent, or any employee thereof, or any other person seeking financial gain thereby, directly or indirectly to induce or solicit, or attempt to induce or solicit, the transfer of any interest whatsoever in realty, by making or distributing, or causing to be made or distributed, any statement or representation concerning the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, sexual orientation, gender identity or expression, disability, familial status, national origin or ancestry or with a particular source of lawful income;

d. For any person to refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate the sale or rental of, or otherwise make unavailable or deny a dwelling to any person because of race, color, religion, sex, familial status, legal source of income, disability, sexual orientation, gender identity or expression, national origin or ancestry;

e. For any person to discriminate against any other person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, legal source of income sexual orientation, gender identity or expression, disability, national origin, or ancestry;

f. For any person to make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion sex, familial status, lawful source of income, sexual orientation, gender identity or expression, disability, national origin, or ancestry, or an intention to make any such preference, limitation, or discrimination;

g. For any person to represent to another person because of race, color, religion sex, familial status, lawful source of income, sexual orientation, gender identity or expression, disability, national origin, or ancestry that any dwelling is not available for inspection, sale, or rental when such dwelling is, in fact, so available;

h. For any person to deny any other person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation on account of race, color, religion sex, familial status, sexual orientation, gender identity or expression, disability, national origin, or ancestry.

i. Notwithstanding the foregoing, a person engaged in the business of furnishing appraisals of real property may take into consideration factors other than race, color, religion, national origin, sex, sexual orientation, gender identity or expression, handicap or familial status.

2. *Discrimination Against Persons With Disabilities.* For purposes of this subsection, the term "discriminatory practice" includes:

a. Discrimination against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, or in the sale or rental or otherwise making unavailable or denying a dwelling to any buyer or renter because of a handicap of:

i. That person; or

ii. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

iii. Any person associated with that person; provided, however, that a refusal to make available a unit for rent shall not be a discriminatory practice if such potential renter, the person with one or more disabilities, or a person on behalf of a person with disabilities seeks modifications to the rental property but the potential renter is unable or unwilling to pay the expense of such modifications or provide the agreement to restore the premises, where it is reasonable to do so, in accordance with the provisions of Subsection C.2.b below.

b. A refusal to permit, at the expense of a person with disabilities, or another person on behalf of a person with disabilities, reasonable modifications of existing premises occupied or to be occupied by such person with disabilities, if such modifications may be necessary or desirable to afford the person with disabilities full enjoyment of the premises, except that, in the case of a rental unit, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

c. A refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodation may be necessary to afford such person an equal opportunity to use and enjoy a dwelling; and

d. In connection with the design and construction of a covered multifamily dwelling for first occupancy after March 13, 1991, a failure to design and construct such dwelling, in a manner that complies with the Fair Housing Act and its implementing regulations.

Notwithstanding the above, compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility for persons with physical disabilities (commonly cited as "ANSI A117.1") suffices to satisfy certain requirements of the Fair Housing Act and its implementing regulations, and nothing in this section shall require a dwelling to be made available to a person whose occupancy would cause a direct threat to the health or safety of other individuals or would result in substantial physical damage to the property of others.

3. *Exemptions.*

a. None of the provisions of Subsection C of this section, except Subsection C.1.f thereof, shall apply to:

i. Any single-family house sold or rented by an owner, provided that: such private individual owner does not own more than three single-family dwellings at any one time; that in the case of the sale of any single-family dwelling by a private owner who was not the most recent resident of such house prior to such sale, the exemption granted herein shall apply only with respect to one such sale within any twenty-four-month period, if such bona fide private individual owner does not own any interest in, nor is there owned or reserved any interest on his behalf, under any express or voluntary agreement, title to or rental of, or any right to all or a portion of the proceeds from the sale or rental of, more than three single-family dwellings at one time; the sale or rental of any single-family dwelling shall be excepted from the application of this subsection only if such house is sold or rented (A) without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker, agent, or salesman, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, agent, salesman, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, and (B) without the publication, posting or mailing, after notice, of any advertisement or written notice in violation of Subsection C.1.f of this section; except that nothing herein shall prohibit the use of attorneys, escrow agents, abstractors, title companies, and other such professional assistance as necessary to perfect or transfer title; or

ii. Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his residence.

b. Nothing in Subsection C of this section shall prohibit a religious organization, association, or society, or any nonprofit institution or organization oper-

ated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such person, unless membership in such religion is restricted on account of race, color, national origin or disability. Nor shall anything in this section prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

c. The provisions of Subsection C of this section regarding familial status shall not apply with respect to housing for older persons.

4. *Prohibited Acts by Landlords, Property Owners and Managers.* It shall be unlawful for any landlord, property owner or manager to do any of the following, except as otherwise provided in this section:

a. Decline a rental application of a potential tenant, or evict a current tenant, occupant or affdiated individual, for any grounds related to said person being a victim of domestic violence, dating violence, sexual violence or stalking.

b. Construe any incident or incidents of actual or threatened domestic violence, dating violence, sexual violence or stalking to be a serious or repeated violation of the lease, or as otherwise "good cause" for terminating the tenancy or occupancy rights of the victim of abuse, provided that the victim has complied with the requirements for gaining the protections afforded by RSMo 455.010, 455.030, 455.030.3, 455.050.

c. Terminate the tenancy or occupancy rights of a victim due to criminal activity directly related to the domestic violence, dating violence, sexual violence or stalking of which such person is the victim, even if the criminal activity is engaged in by a member of a tenant's household or any guest or other person under the tenant's control, provided that the victim has complied with the requirements for gaining the protections afforded by RSMo. 455.010. 455.030, 455.030.3, 455.050.

d. To directly or indirectly advertise or in any other manner indicate or publicize that the patronage of individual of a particular age, race, creed, color, sex, sexual orientation, gender identity, national origin, religion or disability is unwelcome, objectionable, not acceptable or not solicited.

e. If the domestic violence, sexual violence or stalking is being committed by a cotenant of the victim a landlord is authorized to bifurcate the lease to remove the offender while still allowing the victim to remain a tenant or occupant in the residence.

D. *Discrimination in Public Accommodations.* It shall be a prohibited discriminatory public accommodation practice for any person, including, without limitation, any owner, lessee, manager, proprietor, custodian, agent or employee of a place of public accommodation, to discriminate against any individual because of race, color, religion, sexual orientation, gender identity or expression, familial status, legal source of income, disability, national origin or ancestry, with respect to the terms, conditions and privileges of access to or with respect to the uses, services and enjoyment of a place of public accommodation.

E. *Discrimination in City Activities or Programs.* No person shall, on the ground of race, marital status, color, age, religion, sexual orientation, gender identity or expression, familial status, disability, national origin or ancestry, be excluded form participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving funding or other financial assistance or relief directly or indirectly from the City of St. Louis.

F. *Unlawful Intimidation or Retaliation.* It shall be a prohibited discriminatory practice for any person, directly or indirectly, to discriminate, coerce, intimidate, threaten, interfere with, or retaliate against any person because he has: opposed any practice made unlawful by this chapter; has exercised his rights, or encouraged another to exercise his rights under this chapter; or because he has filed a complaint, cooperated with an investigation of an alleged prohibited discriminatory practice, testified at a hearing held by the Commission, or otherwise assisted in any proceeding under this chapter.

G. *Unlawful Interference.* It shall be unlawful to interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, rights granted and protected by this chapter.

H. *Exemptions.*

1. Nothing in this chapter shall limit the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling, nor shall any provision of this chapter regarding familial status apply with respect to housing for older persons.

2. Nothing in this chapter shall prohibit conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined by state and federal law.

3. A person shall not be held personally liable for monetary damages for a violation of this chapter if such person reasonably relied, in good faith, on the application of the exemption under this section relating to housing for older persons. For the purpose of this Subsection 3, a person may only show good faith reliance on the application of this exemption by showing that:

a. Such person has no actual knowledge that the facility or community is not or will not be eligible for such exemption; and

b. The facility or community has stated formally, in writing, that the facility or community complies with the requirements for such exemption. (1994 C., § 3.44.080; Ord. No. 71344, §§ 2, 3, 1-8-2021; Ord. No. 68715, § 5, 7-13-2010; Ord. No. 67119, § 9, 2006; Ord. No. 66088, § 9, 2003.)

3.44.090 Agency action—Preliminary matters.

A. *Complaints and Answers.*

1. An aggrieved person may, not later than one hundred eighty (180) days after an alleged prohibited discriminatory practice has occurred or terminated, file a complaint with the Director. Such complaint shall be in writing, and shall contain such information and be in such form as required by the Director. An agent or attorney of complainant may sign such complaints. Notice shall be served on complainants and respondents consistent with the "notice provisions" of this section. Where a complaint alleges that a respondent has engaged in a prohibited discriminatory practice which would also be a violation of the provisions of RSMo Ch. 213, the complaint shall be handled and investigated as a complaint alleging violation of state law.

2. The Director, on his own initiative, may also file a complaint. Complaints shall be in writing and shall contain such information and be in such form as those complaints filed by aggrieved persons. Where a Director's complaint alleges that a respondent has engaged in a prohibited discriminatory practice that violates the ordinance codified in this chapter and the provisions of RSMo Ch. 213, the complaint shall be handled and investigated as a complaint alleging violation of state law. The Director shall have authority to determine whether a complaint should be filed.

3. Whenever a complaint alleges a prohibited discriminatory practice that, if proven true, would violate this chapter, but does not violate any of the provisions of RSMo Ch. 213, the Director shall cause such complaint to be investigated, and if the Director determines that there is probable cause to believe that a prohibited discriminatory practice has occurred, the Director shall refer the matter to the City Counselor for prosecution.

4. Any complaint which is filed with the federal Equal Employment Opportunity Commission, the Missouri Commission on Human Rights, or other federal or state agency with which the Commission or Director has entered into a work sharing or deferral agreement shall be deemed filed with the Director on the date that such complaint is received by such federal or state agency. A copy of all complaints with respect to which the Missouri Commission on Human Rights would have jurisdiction shall be forwarded to the Missouri Commission on Human Rights within seven days after the complaint is filed with the Director.

5. As soon as practicable upon receipt of a complaint, the Director shall make a determination as to whether the Agency will defer or waive further action thereon pursuant to agreement with federal or Missouri governmental entities having jurisdiction over a substantially identical complaint filed by the same complainant under similar federal or Missouri law, in which case the Director shall notify the complainant and the respondent of such deferral or waiver.

6. When a complaint has been filed, the Director shall:

a. Serve notice upon the complainant acknowledging filing of the complaint and advising the complainant of the time limits and choice of forums available pursuant to federal and state law and this chapter;

b. Not later than ten (10) days after such filing, or the identification of an additional person whom the complainant or the Director determines should be added as a respondent, serve on the respondent a notice identifying the alleged prohibited discriminatory practice and advising the respondent of the procedural rights and obligations of respondents under this chapter, together with a copy of the original complaint.

7. A respondent may file, not later than ten (10) days after receipt of a notice from the Director pursuant to Subsection A.2 of this section, an answer to the

complaint; provided, however, that such answer, for the purpose of meeting the ten-day time limitation specified in this subsection, may consist of an acknowledgment of receipt of complaint together with a request for an extension of an additional twenty (20) days or less for the filing of a complete answer.

8. Complaints and answers shall be under oath or affirmation and may be reasonably and fairly amended at any time.

9. A person who is not initially named as a respondent in a complaint, but whom complainant believes should be added as a respondent, or who is identified as a potential violator of the provisions of this chapter and/or RSMo Ch. 213 during investigation of the complaint, may be joined as an additional or substitute respondent upon written notice from the Director. Such notice shall specify the reasons such person is being added as respondent.

10. Where the Director has deferred or waived action pursuant to the provisions of Subsection A.3 of this section, he shall take no further action thereon under the provisions of this chapter.

B. *Conciliation.*

1. During the period beginning with the filing of a complaint and ending with either a probable cause determination or dismissal, the Agency shall, to the extent feasible, engage in conciliation with respect to such complaint.

2. A conciliation agreement arising out of such conciliation shall be an agreement between the respondent and the complainant, and shall be subject to approval by the Director.

3. A conciliation agreement may provide for binding arbitration of the dispute from which the complaint arises. Any such arbitration conducted pursuant to a conciliation agreement may award appropriate relief, including monetary relief.

4. Every conciliation agreement resolving a complaint filed pursuant to this section alleging violation of Section 3.44.080(C) of this chapter shall be made public, unless the complainant and respondent agree otherwise and the Director determines that disclosure of the agreement is not required to further the purposes of

this chapter. Every conciliation agreement resolving a complaint filed pursuant to this section alleging violation of either Section 3.44.080(B) or (D) shall only be disclosed or made public if complainant and respondent agree to have such agreement made public.

5. Nothing said or done in the course of attempts to conciliate a complaint may be made public or used as evidence in a subsequent proceeding under this chapter without the written consent of the person(s) concerned.

6. Breach of a conciliation agreement resolving a complaint filed hereunder shall constitute a violation of this chapter. Where the Director has reason to believe that such a breach has occurred he may attempt further conciliation and/or refer the matter to the City Counselor for prosecution in municipal court.

7. Where a complaint alleges an action or occurrence which would constitute a violation of the provisions of RSMo Ch. 213 and the complainant and the respondent have thereafter entered into a conciliation agreement which has subsequently been violated by the respondent, the Director shall recommend to the City Counselor or to the Attorney General of the State of Missouri that an action be filed for enforcement of the conciliation agreement.

C. *Investigation.*

1. The Agency shall make an investigation of a complaint of prohibited discriminatory practice, commencing before the end of the 30th day after receipt of the complaint.

2. The investigation of a complaint alleging a violation of the Fair Housing Act, 42 U.S.C. § 3601 et seq. or a violation of Section 3.44.080 C. of this chapter shall be completed within 100 days. If the Agency is unable to complete the investigation within 100 days of the receipt of the complaint, the Agency shall continue the investigation and shall notify the complainant and respondent in writing of the reasons for the delay. The Agency shall make a final administrative disposition of said complaint within one year of the date of receipt of a complaint, unless it is impracticable to do so. If the Agency is unable to do so, it shall notify the complainant and respondent in writing of the reasons for not doing so and shall continue with the investigation, administrative proceeding or conciliation of the complaint.

3. If the parties enter into conciliation agreement pursuant to the provisions of this Section 3.44.090, any investigation shall be terminated upon approval of the conciliation agreement by the Director.

4. The Agency may, in the course of its investigation, direct interrogatories to any or all complainants and/or respondents. Parties shall respond to said interrogatories within twenty (20) days of issuance thereof.

5. At the conclusion of the investigation of a complaint pursuant to the provisions of this section, the Agency shall prepare a final investigative report which shall contain the names and dates of contacts with witnesses and a summary of statements made by such witnesses; a summary and dates of correspondence and contact with the complainant(s) and respondent(s); a summary of other pertinent documents examined by the Agency; and answers to interrogatories propounded by the Agency. This report may be amended if additional relevant evidence is uncovered subsequent to the filing of the report. The investigative report shall be made available to both the complainant and the respondent. Until completion of such a report, a party shall only be given access to documents or other materials in the possession of the Commission or Agency which that party provided to the Agency.

D. *Prompt Judicial Action to Preserve Rights.* If the Director concludes at any time subsequent to the filing of a complaint that prompt judicial action is necessary to protect or prevent frustration of rights protected by RSMo Ch. 213, he shall authorize a civil action for appropriate temporary or preliminary relief pending final disposition of a complaint filed pursuant to the provisions of this section. Upon receipt of such authorization, the City Counselor may commence and maintain such an action. The commencement of a civil action under this subsection does not affect the initiation or continuation of administrative proceedings pursuant to this chapter.

E. *Probable Cause Determination and Effect.*

1. Within ten (10) days of conclusion of an investigation of a complaint, the Director shall make a determination as to whether probable cause exists, based on the investigation, to believe that the respondent has committed or engaged in a prohibited discriminatory practice or is about to commit or engage in a prohibited discriminatory practice.

2. If the Director determines that probable cause exists to believe that a prohibited discriminatory practice has occurred or is about to occur which would also constitute a violation of any of the provisions of RSMo Ch. 213, he shall immediately issue a charge on behalf of the complainant which shall be referred to a hearing officer for further proceedings pursuant to Section

3.44.100 of this chapter. Such charge shall consist of a short and plain statement of the facts upon which the Director has found reasonable cause to believe that a prohibited discriminatory practice has occurred or is about to occur. It need not be limited to the facts or grounds alleged in the complaint.

3. If the Director determines that probable cause exists to believe that a prohibited discriminatory practice has occurred which does not constitute a violation of the provisions of RSMo Ch. 213, he shall immediately refer such matter to the City Counselor for prosecution in municipal court. In such case, the Director may continue efforts at conciliation.

4. If the Director determines that no probable cause exists to believe that a prohibited discriminatory practice has occurred or is about to occur, he shall immediately dismiss the complaint. The Director shall make public all dismissals of a complaint.

5. No charge shall be issued under this section after the commencement of the trial of a civil action, initiated by a complainant under either state or federal law, which seeks relief with respect to the prohibited discriminatory practice alleged in the complaint.

6. Immediately upon issuing a charge, the Director shall cause a copy thereof, together with information as to how an election may be made pursuant to RSMo 213.076 and the effect of such an election, to be served on each complainant and respondent, together with notice of the time and place that a hearing on the charge will be held, unless an election is made pursuant to RSMo 213.076. (1994 C., § 3.44.090; Ord. No. 69692, § 2, 3-5-2014; Ord. No. 67119, § 10, 2006; Ord. No. 66088, § 10, 2003.)

3.44.100 Administrative proceedings subsequent to issuance of charges.

A. The Director may issue subpoenas to compel the attendance of witnesses at hearings held before a hearing officer on a charge either on his own motion or at the request of either the complainant or the respondent. Any person who willfully fails or neglects to attend and testify at a hearing pursuant to subpoena issued pursuant hereto shall be in violation of this chapter. The Director shall also have authority to seek judicial enforcement of subpoenas issued by him.

B. Any party to a complaint on which a charge has been issued may take and use depositions, written interrogatories, requests for production of documents and other materials, and requests for admissions, and all other forms of discovery authorized by the Rules of Civil Procedure in the same manner, upon, and under the same conditions, and upon the same notice, as is or may hereafter be provided for with respect to the taking and using of depositions, written interrogatories, requests for production of documents and other materials, and requests for admissions, and all other forms of discovery authorized by the Rules of Civil Procedure in civil action in state circuit court. The hearing officer appointed to conduct a hearing on a charge may establish a schedule for conduct of discovery in such matter and shall have authority to seek judicial sanctions against any party willfully failing to comply with a request for discovery.

C. Where no election has been made under RSMo 213.076 with respect to a charge issued by the Director, a hearing shall be held thereon by a hearing officer appointed by the Director, unless the respondent admits to having committed the violations as set forth in the charge. This hearing shall be held at the place and time designated in the original notice of the charge, unless the hearing be continued by written order of the hearing officer. In any event, hearings on a charge shall commence within 120 days following issuance of the charge, unless it is impracticable to do so. If hearings are not to be commenced within 120 days of issuance of the charge, the hearing officer shall notify the Director, the complainant(s) and the respondent(s) of the reason for not doing so. At said hearing, each party may appear in person, be represented by counsel, present evidence, and cross examine witnesses. Any aggrieved person may intervene as a party in the proceeding. The admission of evidence at the hearing shall be controlled by the provisions of RSMo 536.070. The hearing officer shall have full authority to call and examine witnesses, admit or exclude evidence and rule upon all motions and objections.

D. No charge shall be resolved prior to issuance of a final order without consent of all complainants on whose behalf the charge has been issued.

E. Administrative proceedings under this section regarding any alleged prohibited discriminatory practice shall be dismissed or held in abeyance after the beginning of trial on a civil action commenced by a complainant under federal or state law, seeking relief with respect to such alleged prohibited discriminatory practice, and the Director shall not issue charges with respect to such complaint after such trial has commenced.

F. Within sixty (60) days of the conclusion of the hearing on a charge, the hearing officer shall file recommended findings of fact, conclusions of law, and a proposed order with the Commission. A tape recording of the proceedings at the hearing, together with copies of all exhibits introduced into evidence at the hearing, shall also be filed with the Commission.

G. Upon receipt of the above, the Commission shall appoint a panel of at least three members of the Commission, or shall act as a whole, to review the tape and the proposed findings of fact, conclusions of law and recommended order prepared by the hearing officer. Within thirty days of the receipt of a submission from a hearing officer, the panel, or the Commission acting as a whole where it has decided to proceed in such manner, shall issue findings of fact, conclusions of law and a final order. Where review of the record and hearing officer's submission has been assigned to a panel of the Commission, the findings of fact, conclusions of law, and order issued by that panel shall be the findings of fact, conclusions of law and order of the Commission as a whole.

H. If the Commission finds that a respondent has engaged, or is about to engage, in a prohibited discriminatory practice, the Commission shall promptly issue an order for such relief, as provided for by Subsection (11) of RSMo 213.075 as may be appropriate and authorized by law.

I. No order issued by the Commission shall affect any contract, sale, encumbrance, or lease consummated before the issuance of such order and involving a bona fide purchaser, encumbrancer or tenant without actual notice of the charge filed pursuant to this section.

J. Upon issuing its order, the Commission shall, within thirty (30) days thereof, submit said order to the Missouri Commission on Human Rights for review. Within forty-five (45) days of issuance of its order, it shall transmit a written copy of the transcript of the hearing and a complete copy of the written record to the Missouri Commission on Human Rights. No decision of the Commission shall be final for purposes of enforcement or appeal, until either the order is affirmed by a hearing examiner of the Missouri Commission or more than ninety days pass from the date upon which the complete transcript and record was received by the Missouri Commission without any opinion being issued thereon by the State Commission's Hearing Examiner.

K. In the case of an order finding that a respondent engaged in a prohibited discriminatory practice that occurred in the course of a business which requires licensing or permitting by a governmental agency (other than a business license or occupancy permit), the Director shall, within thirty days of an order of the Commission becoming final, send copies of the Commission's findings of fact, conclusions of law and order to that agency, together with a recommendation of appropriate disciplinary action.

L. Where a respondent has been found to have engaged in a prohibited housing or realty practice twice within the preceding five-year period, the Director shall send a copy of each order to the Assistance Secretary for Fair Housing of the Department of Housing and Urban Development, to the Missouri Commission on Human Rights, the Missouri Attorney General, and the City Counselor.

M. If the Commission finds that the respondent has not engaged and is not about to engage in a prohibited discriminatory practice, he shall enter an order dismissing the charge. The Director shall make public each such dismissal. (1994 C., § 3.44.100; Ord. No. 67119, § 11, 2006; Ord. No. 66088, § 11, 2003.)

3.44.110 Judicial review.

Any party aggrieved by a final decision of the Commission shall have the right to seek judicial review of such decision, as in other contested cases, pursuant to the provisions of RSMo Ch. 536. Any petition for judicial review of a final order of the Commission must be filed within thirty days of the date on which such order became final. (1994 C., § 3.44.110; Ord. No. 67119, § 12, 2006; Ord. No. 66088, § 12, 2003.)

3.44.120 Enforcement of Commission orders.

A. If no petition for judicial review is filed within thirty (30) days of the date on which an order of the Commission becomes final, the Director may authorize the City Counselor to file suit in Circuit Court seeking enforcement of the Commission's order, as provided for in RSMo 213.085.3. The City Counselor shall thereafter file a petition in Circuit Court seeking to enforce the Commission's decision. The relief which may be granted on such petition, and the procedure thereon, shall be that provided by RSMo 213.085.3.

B. If no petition is filed by the City Counselor for enforcement of a Commission order within sixty days of issuance of said order, a complainant entitled to relief under such order may file a petition for enforce-

ment as provided by RSMo 213.085.4. (1994 C., § 3.44.120; Ord. No. 67119, § 13, 2006; Ord. No. 66088, § 13, 2003.)

3.44.130 Representation of complainant where election is made pursuant to RSMo 213.076.1.

If the Director has made a finding of probable cause and an election is made pursuant to RSMo 213.076.1, the Director shall request that the City Counselor file suit on behalf of the City and, if one or more complainants or aggrieved persons choose not to retain private counsel, on behalf of any complainant or aggrieved person not represented by private counsel. Within thirty (30) days of such request being made, the City Counselor, or private counsel retained under contract by the City Counselor, shall commence and maintain a civil action in Circuit Court in the name of the City and any complainant not represented by private counsel seeking relief as authorized by RSMo Ch. 213. Should the City Counselor prevail in such suit, he is hereby authorized and directed to seek attorney's fees. Any attorney's fees recovered by the City shall be paid into the General Revenue Fund of the City. The City Counselor may retain private counsel to commence and maintain the lawsuit, but shall not through such retention delegate decisionmaking authority with respect to such suit to such private counsel. (1994 C., § 3.44.130; Ord. No. 67119, § 14, 2006; Ord. No. 66088, § 14, 2003.)

3.44.140 Savings clause.

A. The substantive rights, duties and liabilities of any person which have arisen or accrued pursuant to any ordinance repealed hereby shall not be extinguished, prejudiced or otherwise altered due to the repeal of said ordinances and the adoption hereof but shall be reserved until satisfied, resolved and terminated, pursuant to the provisions of said ordinances.

B. The rights, duties and liabilities of any person, as that term is defined hereinafter, which arise after the effective date of the ordinance codified in this chapter, shall be governed by the provisions of this chapter. (1994 C., § 3.44.140; Ord. No. 67119, § 15, 2006; Ord. No. 66088, § 15, 2003.)

3.44.150 Penalty.

Any person convicted of violation of this chapter shall be punished by a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment, unless a higher maximum fine is subsequently dictated by Charter amendment, in which case the maximum fine shall be increased to such higher maximum authorized by the amendment. (1994 C., § 3.44.150; Ord. No. 67119, § 17, 2006; Ord. No. 66088, § 17, 2003.)

3.44.160 Construction of this chapter.

The provisions of this chapter shall be construed liberally for the accomplishment of the purposes thereof. (1994 C., § 3.44.160; Ord. No. 67119, § 18, 2006; Ord. No. 66088, § 18, 2003.)

Chapter 3.45

SPECIAL EVENTS

Sections:

3.45.010 Definitions.
3.45.020 Special events office.
3.45.030 Duties of Special Events Office.
3.45.040 Date and location preference for established special events.
3.45.050 Applications for special event permits.
3.45.060 Processing of applications for special event permits.
3.45.070 Vending, liquor sales and temporary signage in special event zones.
3.45.080 Time deadlines.
3.45.090 Departments' duty to notify of permits.
3.45.100 Special Events Advisory Committee.
3.45.110 Regulations.

3.45.010 Definitions.

As used in this chapter the following terms have the following meanings:

"Clear" means that there is not a special event or other organized event authorized by a City department scheduled at the same time and in the same place as a special event for which an application is filed with the Special Events Office and that there is no established special event entitled to such time.

"Established special event" means a special event which has occurred on substantially the same days of the same week or weeks in the same month, at substantially the same place, for five or more years.

"Festival" means an organized social, cultural, religious, artistic, athletic or like event taking place on one or more days which involves use of public right of way/property and which is not a parade.

"Organizer" means the entity which is organizing and in charge of the conduct of a special event.

"Parade" means an organized movement by a group of people along City property for social, cultural, religious, artistic, festive, expressive, commemorative, or like reasons or purposes.

"Private property" means all property that is located within the boundaries of the City, except for property that is owned by the City or by a governmental entity that is not subject to City regulation.

"Production zone" means one or more areas, not necessarily contiguous to each other, used by a special event organizer for the production of the special event, including, but not limited to, stages, barricades, parked vehicles, booths, tents or other temporary or permanent structures, temporary signage and/or utility poles, and the area immediately surrounding them.

"Public right-of-way/property" means any property that is owned or controlled by the City, including, but not limited to, streets, sidewalks, parks, plazas, malls, and public buildings.

"Related departments" means City and non-City government departments or agencies which the special events program executive believes will be involved in facilitating, regulating and assisting a particular special event. Related departments may vary, depending on the size, nature and location of particular special events, and may include, by way of example and not by way of limitation, (i) the Mayor; (ii) the President of the Board of Aldermen; (iii) the Fire Chief; (iv) the Commissioner of Emergency Management; (v) the Excise Commissioner; (vi) the Director of Streets; (vii) the Director of Parks, Recreation and Forestry; (viii) the Director of Public Utilities; (ix) the Director of Health and Hospitals; (x) the President of the Board of Public Service (xi) the Director of the Business Assistance Center; (xii) the License Collector; (xiii) the Collector of Revenue; (xiv) the Port Authority Director; (xv) the Chief of Police; (xvi) the Operational Planning office and Traffic Division of the Police Department; (xvii) the Bi-State Development Agency/METRO; (xviii) the National Park Service; (xix) the Convention and Visitors Commission; (xx) the St. Louis Sports Commission; (xxi) the Coast Guard; (xxii) the Missouri Department of Transportation and (xxiii) the Illinois Department of Transportation.

"Special event" means an organized event which is open to the public, requires a permit or other approval from more than one City department or agency other than the Special Events Office, and takes place on public right of way/property, including, but not limited to, parades, certain charitable runs or walks, street fairs, and festivals. "Special event" does not include (i) picnics, barbecues, sports activities or private events at park facilities, under permits from the Department of Parks, Recreation and Forestry, or (ii) events of any kind in Forest Park, or (iii) block observances of National Night Out.

"Special event zone" means the entire area in which a special event occurs and includes the production zone, all vending locations connected with the event, temporary signage, and the area expected to be occupied by persons attending the event. (1994 C., § 3.45.010; Ord. No. 68296, § 1, 2-16-2009.)

3.45.020 Special events office.

There is hereby established a Special Events Office as a division of the Department of Public Safety, which Office shall consist of:

1. A special events program executive, who shall be appointed by the Director of Public Safety in accordance with Article XVIII of the Charter. The program executive shall be the executive head of the Special Events Office, shall have general direction and control of such office, and shall be responsible for carrying out the duties of such office. The program executive shall receive a salary fixed in accordance with ordinance provisions. The program executive shall have such additional authority, duties and responsibilities as may be authorized by this chapter or by subsequent ordinances.

2. A Special Events Office staff, to consist of such technical, clerical, stenographic, and other personnel as deemed necessary by the manager. The program executive shall appoint and supervise the Special Events Office's personnel pursuant to the Civil Service provisions of the Charter and ordinances, and when they are to be compensated, may make such expenditures within the appropriations therefor, or from other funds made available, as may be necessary to carry out the purposes of this chapter. In all applicable cases, the system of personnel administration in the Special Events Office

shall be in accordance with the merit system requirements of Article XVIII of the Charter, as supplemented by ordinance, rules or regulations. (1994 C., § 3.45.020; Ord. No. 68296, § 2, 2-16-2009.)

3.45.030 Duties of Special Events Office.

The Special Events Office shall:

1. Maintain and make available to the public standardized written descriptions of the City's requirements for different types of special events.

2. Issue permits consistent herewith for special events.

3. Maintain and distribute a current schedule of (i) future special events in the City for which permits have been issued and (ii) established special events unless the Special Events Office is notified by the organizer of an established special events that the event will not occur.

4. Assist organizers of special events to obtain permits needed from other City departments.

5. Act as a liaison/coordinator among all governmental agencies and departments in the City which have duties or functions relating to special events. (1994 C., § 3.45.030; Ord. No. 68296, § 3, 2-16-2009.)

3.45.040 Date and location preference for established special events.

The special event office shall reserve the dates and location of a special event which has become an established special event. Unless the special event office has been notified by the organizer of the established event that the established special event does not wish to continue to reserve its dates and location, the Special Events Office shall not issue a permit for another special event for such dates and location. (1994 C., § 3.45.040; Ord. No. 68296, § 4, 2-16-2009.)

3.45.050 Applications for special event permits.

A. An application for a special event permit other than a parade shall be filed with the Special Events Office not less than sixty calendar days before the first proposed day of the special event.

B. An application for a special event which is a parade shall be filed with the Special Events Office not less than ninety calendar days before the proposed day of the parade.

C. An administrative processing fee of twenty-five dollars ($25.00) shall be paid with the application for any special event permit, with the exception of neighborhood block parties, which will be free of such administrative processing fee. This fee is separate from and not in lieu of any other fee required for any permit or authorization relating to the special event.

D. An application for a special event permit shall be made on a form prescribed by the Special Events Office and shall contain the following information, together with additional information which the Special Events Office may determine appropriate from time to time:

1. The name and general nature of the proposed special event;

2. The dates and beginning and ending times of day of the proposed special event;

3. The location of the proposed special event;

4. The identity of the organizer of the special event and the names, residential and business addresses, and telephone numbers of such organization's board of directors or committee and of its manager or staff director;

5. An estimate of the number or participants or attenders of the proposed special event;

6. Whether the proposed special event will involve aquatic or aerial activities, or pyrotechnics/fireworks;

7. The times, dates and locations of specific events proposed as part of the event, e.g. concerts and a description of such events;

8. The boundaries of the proposed special event zone and the locations of the production zone within the special event zone;

9. A detailed description of food and beverage service and vending proposed during the special event, together with menus and a list of items proposed to be sold during the special event;

10. The name and address of the security firm that will provide security services to the special event and the name, addresses and telephone numbers of the responsible person at such firm;

11. The name, address, telephone number and contact person of the insurance broker which will provide insurance for the special event;

12. If the special event has one or more corporate sponsors, the names thereof and the nature of their business, and the name, addresses and telephone number of the responsible person at such corporation;

13. The name and telephone numbers of the organizer's representative responsible for any required permits from other governmental agencies which are not part of City government;

14. Information concerning temporary signage proposed for the special event site, including the production zone;

15. A trash pick-up and recycling plan for the special event;

16. If the special event is a parade the special event permit application shall contain the following additional information:

a. The proposed route of the parade;

b. The anticipated number of participants in the parade;

c. Whether the parade will include motor vehicles or animals; and

d. The estimated number of spectators. (1994 C., § 3.45.050; Ord. No. 68296, § 5, 2-16-2009.)

3.45.060 Processing of applications for special event permits.

A. Upon receipt of a completed special event permit application and the fee, the Special Events Office shall:

1. Immediately determine if the proposed special event dates are clear, and if they are not, immediately advise the applicant.

2. Distribute the application for comment to the appropriate related departments, if any.

3. If it deems such a meeting necessary because of the size of the special event, or for any other reason, convene a meeting of the special event organizer and representatives of the appropriate related departments.

4. Advise the applicant within ten days (fifteen days in case of a parade) of all permits other than the special event permit which the office believes will be required for the special event.

5. Advise the applicant within ten days (fifteen days in case of a parade) of all insurance requirements for the festival.

6. Advise the applicant within thirty days if the special event permit will be issued upon the applicant's obtaining all other necessary permits and insurance, whether there will be any other conditions on the permit, or if the permit is denied.

B. If an applicant has been advised that the special event permit will be issued upon the applicant's obtaining all other necessary permits and insurance, the Special Events Office shall issue the permit upon proof that all such permits and insurance has been obtained, and shall send copies of the permit to the related departments. (1994 C., § 3.45.060; Ord. No. 68296, § 6, 2-16-2009.)

3.45.070 Vending, liquor sales and temporary signage in special event zones.

After a special event permit has been issued, no new permit (except permits issued in connection with other authorized special events occurring within the clean zone time as defined in this section in all or part of the special event zone) shall be issued for temporary vending, temporary liquor sales or temporary signage within such special event zone for a period of one to thirty days ("clean zone time") if and as determined by the Special Events Office to be necessary for the successful and orderly conduct of the special event before the beginning of the special event until the end of the special event without the written consent of the special event permit holder. The Special Events Office shall notify the special event permit holder, the Excise Commissioner, the Building Commissioner and the License Collector of the clean zone time for a special event as soon as such clean zone time is determined. (1994 C., § 3.45.070; Ord. No. 68296, § 7, 2-16-2009.)

3.45.080 Time deadlines.

It is the policy of the City to encourage the holding of special events within the City. Accordingly, for good cause as determined by the special events program executive, time deadlines provided for in this chapter may be reduced or waived provided such reduction or waiver is consistent with public health and safety. (1994 C., § 3.45.080; Ord. No. 68296, § 8, 2-16-2009.)

3.45.090 Departments' duty to notify of permits.

All City departments and offices shall notify the Special Events Office of any event for which such departments and offices issue permits immediately after issuing such permits. (1994 C., § 3.45.090; Ord. No. 68296, § 9, 2-16-2009.)

3.45.100 Special Events Advisory Committee.

There is hereby established a Special Events Advisory Committee to consist of at least five representatives of organizers of established special events. The Mayor shall appoint the members of such Committee subject approval of the Board of Aldermen. Such Committee shall meet at least once annually or more frequently as it believes desirable and shall offer suggestions to the Special Events Office concerning ways to enhance the process of authorizing and regulating spe-

cial events and the administration of this chapter. (1994 C., § 3.45.100; Ord. No. 68296, § 10, 2-16-2009.)

3.45.110 Regulations.

The Special Events Office is authorized to promulgate regulations consistent with this chapter and other applicable law to facilitate the regulation of special events. Such regulations shall be approved by the City Counselor's Office and the Director of Public Safety prior to issuance and shall be filed with the Register. Except in emergency situations, such regulations shall be submitted to the Special Events Advisory Committee for comment at least thirty days prior to issuance. (1994 C., § 3.45.110; Ord. No. 68296, § 11, 2-16-2009.)

Chapter 3.46

RESERVED

Editor's Note:

Ord. No. 72042, § 2, adopted October 30, 2025, amended the Code by repealing former Ch. 3.46, §§ 3.46.010—3.46.140, which pertained to the Model City Agency, and derived from the 1994 Code, §§ 3.46.010—3.46.140; and Ord. No. 55660 of 1970.

Chapter 3.47

COMMUNITY DEVELOPMENT ADMINISTRATION

Sections:

3.47.010 Community Development Administration—Established.

3.47.020 Community Development Administration—Duties.

3.47.030 Community Development Administration—Current programs.

3.47.040 Community Development Administration—Reports.

3.47.050 Community Development Administration—Director.

3.47.060 Monitoring Manager and Office.

3.47.070 Fiscal Manager and Office.

3.47.080 Special Programs Manager and Office.

3.47.090 Division of Residential Development.

3.47.010 Community Development Administration—Established.

There is established on the effective date of Ordinance 64687 (B.B. 52CS) a Community Development Administration. The Community Development Administration shall consist of a Director appointed by the Mayor, a Monitoring Office, a Fiscal Office, a Special Programs Office and a Residential Development Office. (1994 C., § 3.47.010; Ord. No. 64688, § 1, 1999.)

3.47.020 Community Development Administration—Duties.

The duties of the Community Development Administration are to apply for, receive and administer federal Department of Housing and Urban Development ("HUD") funds, for City development activities and program activities eligible to be funded with HUD funds, and to comply with all lawful and applicable rules, regulations and reporting requirements imposed by HUD in connection with its grants of funds. (1994 C., § 3.47.020; Ord. No. 64688, § 2, 1999.)

3.47.030 Community Development Administration—Current programs.

A. As of the date of adoption of the ordinance codified in this chapter, the programs, formerly administered by the Community Development Agency, which shall be administered by the Community Development Administration include the following:

1. Community Development Block Grant Entitlement Program;

2. Community Development Block Grant Emergency Supplemental Program;

3. Urban Development Action Grant Program;

4. HOME Investment Partnerships Program;

5. HOME Disaster Funds;

6. Housing Opportunities for Persons with AIDS Program;

7. Emergency Shelter Grants;

8. Section 108 Loan Guarantee Program;

9. Economic Development Initiative Grant Program;

10. Lead Based Paint Hazard Control Program;

11. Rental Rehabilitation Program;

12. State of Missouri Community Development Block Grant Program.

B. The Community Development Administration is hereby authorized and directed to administer the above programs and other programs which may hereafter be funded by HUD for and on behalf of the City. All records and documents of the former Community Development Agency, relating to such programs, shall

be transferred to the Community Development Administration. (1994 C., § 3.47.030; Ord. No. 64688, § 3, 1999.)

3.47.040 Community Development Administration—Reports.

A. As of the date of adoption of the ordinance codified in this chapter, the reports, formerly prepared by the Community Development Agency, to be prepared and filed with HUD by the Community Development Administration include the following reports required by HUD:

1. Consolidated Annual Performance and Evaluation Report;

2. Integrated Disbursement and Information System Reporting;

3. Emergency Supplemental Grantee Performance Reports;

4. City of St. Louis Consolidated Annual Plan; and

5. St. Louis Consolidated Plan, 5-Year Strategy.

B. The Community Development Administration is authorized and directed to file such reports and other reports which may subsequently be required by HUD for and on behalf of the City. All records and documents of any kind related to such reports, formerly held by the Community Development Agency, shall be transferred and held by, and become records of, the Community Development Administration. (1994 C., § 3.47.040; Ord. No. 64688, § 4, 1999.)

3.47.050 Community Development Administration—Director.

There shall be a Community Development Administration Director appointed by the Mayor, who may be removed for cause only. The Director shall oversee the operations of the Administration and shall appoint and supervise its personnel pursuant to the Civil Service provisions of the Charter and ordinances. He shall prepare an annual budget for the Administration. With the approval of the Board of Estimate and Apportionment he shall have power to enter into contracts in furtherance of the purposes of this chapter. All such contracts to be executed in the name of the City shall be signed by the Director and the Comptroller, unless otherwise provided for or required by law. (1994 C., § 3.47.050; Ord. No. 64688, § 5, 1999.)

3.47.060 Monitoring Manager and Office.

The Community Development Director shall appoint a Community Development Administration Monitoring Manager pursuant to the Civil Service provisions of the Charter and ordinances to monitor and assist in the implementation of work programs and other contracts funded through the Community Development Administration, and to assure the accountability of funded parties. Work programs and other contracts funded through the Community Development Administration shall be implemented in accordance with all applicable law and HUD regulations and rules. The Monitoring Manager shall oversee the work of the Monitoring Office and assist the Community Development Director in connection with all matters relating to the Community Development Administration's monitoring functions and duties. (1994 C., § 3.47.060; Ord. No. 64688, § 6, 1999.)

3.47.070 Fiscal Manager and Office.

The Community Development Director shall appoint a Community Development Administration Fiscal Manager pursuant to the Civil Service provisions of the Charter to manage funds received by the Community Development Administration. Funds shall be managed in accordance with all applicable law and HUD regulations and rules. The Fiscal Manager shall oversee the work of the Fiscal Office and assist the Community Development Director in connection with all matters relating to the Community Development Administration's fiscal management functions and duties. (1994 C., § 3.47.070; Ord. No. 64688, § 7, 1999.)

3.47.080 Special Programs Manager and Office.

The Community Development Director shall appoint a Community Development Administration Special Programs Manager pursuant to the Civil Service provisions of the Charter to be in charge of programs directly conducted by City personnel within the Community Development Administration. The Special Programs Manager shall oversee the work of the Special Programs Office and assist the Community Development Administration Director in connection with all matters relating to the Community Development Administration's special programs functions. (1994 C., § 3.47.080; Ord. No. 64688, § 8, 1999.)

3.47.090 Division of Residential Development.

The Community Development Director shall appoint a residential development manager in accordance with the Civil Service provisions of the Charter. The Manager of Residential Development under the direction of the Director of the Community Development Administration shall perform all activities necessary for the development and implementation of residential endeavors in the City. The Manager of Residential Development shall further be charged with the encouragement and implementation of beautification projects within the City. (1994 C., § 3.47.090; Ord. No. 64688, § 9, 1999.)

Chapter 3.48

PLANNING AND URBAN DESIGN AGENCY

Procedures for declaring an area obsolete, Ch. 11.07.

Prior history: Ords. 49589, 49776, 49865, 50090, 53609, 53746, 54749, 54790, 59241, 57492, 56708; 1948 C. Ch. 2 §§ 114—126; 1960 C. §§ 20.010—20.210, Chs. 31, 32

City Counselor Ops.: 8178, 8388, 8512, 8592, 9276

Sections:

3.48.010	**Definitions.**
3.48.020	**Agency established.**
3.48.030	**Director of Planning and Urban Design Agency.**
3.48.040	**Cultural Resources Director.**
3.48.050	**Duties of Planning Office—Plans.**
3.48.060	**Planning Commission.**
3.48.070	**Planning Commission powers and duties.**
3.48.080	**Comprehensive Plan—Contents.**
3.48.090	**Comprehensive Plan—Preparation.**
3.48.100	**Comprehensive Plans—Adoption by Commission.**
3.48.110	**Commission—Neighborhood Plans, Tropical Plans and other plans.**
3.48.120	**Construction in area with Comprehensive Plan.**
3.48.130	**Platting street lines.**
3.48.140	**Official map.**
3.48.150	**Official map—Changes.**
3.48.160	**Building in mapped areas**
3.48.170	**Building permits—Without access to streets.**
3.48.180	**Duties of Cultural Resources Office.**
3.48.190	**Effective date—Functions and duties.**
3.48.220	**Plan for Industrial Expansion, Inc.**

3.48.010 Definitions.

As used in this chapter, the following terms have the following meanings:

"Agency Director" means the Director of the Planning and Urban Design Agency, appointed by the Mayor pursuant to this chapter.

"Comprehensive Plan" means a plan for the City heretofore adopted pursuant to RSMo 89.340, as amended, or as hereafter amended or newly adopted pursuant to this chapter.

"Cultural Resource" means a site or improvement that:

1. Has significant character or value as part of the development, heritage or cultural characteristics of the City, state or nation; or

2. Is the site of a significant historic event; or

3. Is the work of a master whose individual work has significantly influenced the development of the City, state or nation; or

4. Contains elements of design, detail, materials or craftsmanship which represent a significant innovation; or

5. Owing to its unique location or singular physical characteristic represents an established and familiar visual feature of a neighborhood, community or the City; or

6. Has yielded, or is likely to yield, according to the best available scholarship, archaeological artifacts important in prehistory or history; or

7. Is a work of art located in a public space.

"Infrastructure Capital Improvement" means any action or expenditures taken or made to replace, install, refurbish, rehabilitate, reconstruct, construct, update or otherwise improve the public infrastructure in the City, whether or not owned by the City, including, for example, but not limited to, roads, bridges, parks, other public places, sidewalks, alleys, transit facilities and public buildings.

"Neighborhood Plan" means a plan relating to specific neighborhoods or combinations of neighborhoods, generally containing greater details as to current conditions, trends, projects and recommendations than the Comprehensive Plan, and, in general, expanding upon and illustrating the basic goals, objectives and principles contained in the Comprehensive Plan, and reflecting a clear understanding of the aspirations of residents, business persons and other stakeholders likely to be impacted by the implementation of the plan.

"Planning Commission" means the Planning Commission established by this chapter.

"Planning and Urban Design Agency" means the Planning and Urban Design Agency established by this chapter.

"Preservation Board" means the Preservation Board established by Ordinance 64689 (B.B. 54CS.)

"Topical Plan" means a plan relating to a specific topic, for example transportation, or to a land use or operational issue deemed to be of importance to the City, generally containing greater details as to current conditions, trends, projects and recommendations than the Comprehensive Plan, and, in general, expanding upon and illustrating the basic goals, objectives and principles that are contained in the Comprehensive Plan, and reflecting a clear understanding of the aspirations of residents, business persons and other stake-

holders likely to be impacted by the implementation of the plan. (1994 C., § 3.48.010; Ord. No. 64687, § 2, 1999.)

3.48.020 Agency established.

There is hereby established the City of St. Louis Planning and Urban Design Agency. The Agency shall consist of an Agency Director, a Planning Office, a Cultural Resources Director, a Cultural Resources Office, a Planning Commission, and, upon the effective date of Ordinance 64689 (BB54CS), the Preservation Board established by that ordinance. (1994 C., § 3.48.020; Ord. No. 64687, § 3, 1999.)

3.48.030 Director of Planning and Urban Design Agency.

An Agency Director for the Planning and Urban Design Agency shall be appointed by the Mayor and may be removed for cause only. The Agency Director shall oversee the administrative and technical work of the Planning and Urban Design Agency and the Planning Commission, and is authorized to appoint personnel necessary to perform the duties and functions of the Planning and Urban Design Agency. The Agency Director shall prepare an annual budget for the Planning and Urban Design Agency. The Agency Director shall have the authority to identify new planning and Cultural Resources-related functions and activities not enumerated in this chapter but consistent herewith and cause them to be performed. He may make temporary reassignments of personnel within the Planning and Urban Design Agency, as needed for effective operations. (1994 C., § 3.48.030; Ord. No. 64687, § 4, 1999.)

3.48.040 Cultural Resources Director.

A Cultural Resources Director shall be appointed by the Agency Director in accordance with the Civil Service provisions of the Charter. The Cultural Resources Director shall render general and technical services relating to historic preservation to the Agency Director and to the Planning Commission and the Preservation Board, and shall perform other activities relating to Cultural Resources as directed by the Agency Director and the Planning Commission. The Cultural Resources Director is authorized to appoint personnel necessary to perform the duties and functions of the Cultural Resources Office and shall supervise the work of the Cultural Resources Office staff. (1994 C., § 3.48.040; Ord. No. 64687, § 5, 1999.)

3.48.050 Duties of Planning Office—Plans.

The Planning Office shall:

A. Prepare for review by the Planning Commission revisions of and amendments or additions to the City's Comprehensive Plan;

B. Prepare for review by the Planning Commission such other plans as are consistent with this chapter and which are requested by the Planning Commission;

C. Perform planning and research at City-wide and neighborhood levels;

D. Develop Infrastructure Capital Improvements information for action thereon by the Planning Commission pursuant to Section 3.48.070N of this chapter;

E. Develop maps, graphs and other graphic material relating to planning; it may copyright any such material in the name of the City and charge for copies thereof;

F. Conduct ongoing reviews of zoning policy, and recommend any changes it believes appropriate in the City's zoning ordinances and zoning maps to the Planning Commission, together with the reasons for such recommendations;

G. Provide studies and reports as necessary to satisfy local, state and federal requirements concerning planning, zoning and land use;

H. Assist in developing the "5-Year Consolidated Plan Strategy," "Neighborhood Revitalization Strategies," and "Annual Performance Evaluation Report" presently required by the Federal Department of Housing and Urban Development;

I. Prepare housing conservation district analyses, development plan analyses, conditional use permit reviews, and related reports as may be required by law or requested by the executive or legislative branch of the City, and assist the Treasurer upon request in preparation of the annual lending study required by Section 5.12.060, City Code;

J. Prepare plans required by the federal government in connection with National Register of Historic Places properties;

K. Develop design and use standards for review by the Planning Commission for inclusion in the Comprehensive Plan and Neighborhood Plans;

L. Develop innovative techniques for improvements of residential and commercial areas, such as specific exterior design standards for future construction in certain residential and commercial areas, and

recommend to the Planning Commission implementation, subject to necessary ordinance authorization, of such techniques;

M. Perform such other functions as may be provided by subsequent ordinances and other applicable law. (1994 C., § 3.48.050; Ord. No. 64687, § 6, 1999.)

3.48.060 Planning Commission.

A. The Mayor shall appoint a Planning Commission consisting of thirteen members. The following City officials or persons appointed by City officials shall be members: a designee of the Mayor performing economic development activities on behalf of the City and reporting to the Mayor; a designee of the President of the Board of Public Service; a designee of the Comptroller; a designee of the President of the Board of Aldermen; and the Chairs of the Transportation and Housing, Urban Development and Zoning Committees of the Board of Aldermen. The remaining seven members ("citizen members") shall be appointed by the Mayor and shall have a demonstrated interest in City planning and development. One such citizen member shall be a registered architect, one shall be a practicing planner, one shall be a registered engineer, one shall be a registered landscape architect, and one shall have demonstrated expertise in transportation policy and/or planning. Of the citizen members first appointed, two shall serve for terms of four years, two shall serve for terms of two years, two shall serve for terms of three years, and one shall serve for terms of one year. All subsequently appointed citizen members shall serve for four year terms. Any vacancy in a membership shall be filled for the unexpired term by appointment as aforesaid. With respect to those members who are either City officials or designees of City officials, in the event any such member is unable to attend a given meeting of the Planning Commission, then the City official who is himself/herself a member or who designated the nonattending member may appoint a temporary replacement to sit in his or her stead. Such an appointment is revocable at will.

B. The Directors of the Departments of Parks, Recreation and Forestry, Public Safety, Public Utilities and Streets shall serve as advisors to the Commission and shall attend the meetings thereof.

C. The Planning Commission shall elect its Chairperson from among its citizen members and elect a secretary and such other officers as it may determine. The Planning Commission may adopt rules for the conduct of its business and keep a record of its proceedings. It shall hold regular meetings and special meetings as necessary to conduct business. Its records shall be public records. A majority of all members of the Planning Commission shall be a quorum. Unless otherwise provided by this chapter or by applicable law, a majority of a quorum shall be required to approve or reject matters presented to it for decision or for other actions of the Commission. (1994 C., § 3.48.060; Ord. No. 68138, § 1, 10-31-2008; Ord. No. 64925, § 7, 2000; Ord. No. 64687, § 7, 1999.)

3.48.070 Planning Commission powers and duties.

A. The Planning Commission shall be the official planning agency for the City. It shall also be the Zoning Commission for the City. It shall perform for the City all functions required by applicable state law to be performed by a municipal planning commission and by a municipal zoning commission. It shall be the lawful successor to and shall assume the planning and zoning powers and duties of the Community Development Commission.

B. The Agency Director, with the approvals of the Planning Commission and the Board of Estimate and Apportionment, shall have the power to enter into contracts with planners, engineers, architects, and other consultants for services as the Planning Commission may require, provided funds for such services are lawfully available. All such contracts shall be executed in the name of the City and shall be signed by the Agency Director and the Comptroller.

C. The Agency Director with the approval of the Planning Commission is authorized to accept gifts, contributions, grants and donations for the furtherance of development or beautification within the City, on behalf of the Planning Commission. Gifts, contributions, grants and donations shall be used solely for the purposes indicated. Any gift in the form of money accepted by the Agency Director shall be deposited into a special account by the Comptroller and the Comptroller shall draw warrants on the account only for the purposes of carrying out the terms and conditions of the gift or donation.

D. The Planning Commission shall recommend changes in the zoning ordinances and zoning district maps to the Board of Aldermen.

E. The Planning Commission may hear appeals of decisions of the Preservation Board, consistent with

the procedures described in Ordinance 64689 and the Planning Commission may promulgate rules, consistent herewith, and with other applicable law, concerning the conduct of review of such decision.

F. Any blighting study and redevelopment plan under RSMo Chs. 99 (including both Sections 99.430 et seq. and 99.810 et seq.), 100 and 353 shall be submitted to the Planning Commission for its recommendation as to its conformity with the Comprehensive Plan and for such other findings as may be required by law.

G. The Planning Commission shall create and support community-based neighborhood planning activity. To that end, it shall direct the Agency Director to initiate a neighborhood-based planning program working with neighborhood organizations, aldermen, neighborhood stabilization managers and other concerned participants, and to coordinate such program with similar programs of the state and federal governments.

H. The Planning Commission shall review specific rezoning requests, street and alley vacation requests, proposed development plans and related development activity for compliance with the Comprehensive Plan and any applicable Neighborhood Plan.

I. The Planning Commission shall provide factual input for planning and development decisions. To that end it may:

1. Monitor economic, environmental and planning indicators on a neighborhood basis, a City-wide basis and a regional basis;

2. Monitor the market for housing, economic development and related aspects of the regional, national and international economies in order to inform specific development decisions;

3. Monitor development trends and initiatives in communities regionally, nationally and internationally to determine their relevance to St. Louis;

4. Share data and information with City departments and agencies and elected officials, and, as appropriate, with neighborhood groups, businesses, citizens and other political subdivisions and agencies.

J. The Planning Commission may on an on-going basis improve the use of information technology to support planning and development within the City and regionally. To that end it may:

1. Enhance the use of electronic solutions to share information;

2. Enhance the use of "Geographic Information Systems" within the planning and development agencies and the City as a whole;

3. Increase interdepartmental collaborative efforts to improve the quality of data maintained and used by City departments.

K. The Planning Commission may review proposals of the Planning Office for use of innovative techniques for improvement of areas of the City, for example, the establishment of residential and commercial design overlay districts, and if it approves them, recommend any appropriate implementing ordinances to the Board of Aldermen.

L. The Planning Commission may consult with public officials and agencies, public utility companies, civic, educational, professional and other organizations, and with citizens with relation to the implementation of any plan it approves. All City officials and employees, upon request, shall furnish to the Planning Commission within a reasonable time available information as it requires for its work. The Planning Commission, its members the Agency Director and Planning Office staff, in the performance of their functions, may, to the extent permitted by law, enter upon any land and make examinations and surveys and place and maintain necessary monuments and markers thereon.

M. To the extent consistent with applicable law, the Planning Commission may, by regulation adopted, delegate its authority to review certain matters to the Agency Director or Planning Office staff or to the Board of Public Service. Specifically, and not by way of limitation, the Planning Commission may authorize the Agency Director or Planning Office staff to act on its behalf in reviews of street vacations and blighting studies and redevelopment plans for parcels of one acre in size or less.

N. On or before February 1 of each year, the Planning Commission shall adopt, based on information provided to it by the Planning Office, (1) a plan and budget for Infrastructure Capital Improvements which it proposes be made in the City during the next ensuing fiscal year (the "subsequent year plan and budget") and (2) recommendations for Infrastructure Capital Improvements which the Commission proposes be made in each of the five fiscal years following the subsequent fiscal year (the "five-year plan and budget"). The subsequent year plans and budgets and the five-year plans and budgets shall each be consistent with the Comprehensive Plan, and shall set forth informed estimates of the cost of each item recommended and shall include recommended methods for financing the Infrastructure Capital Improvements included therein from all

potential sources of funds, including, but not limited to, other governmental bodies, private parties, and the state and the federal governments. Department heads and other public officials, upon request, shall provide their suggestions for Infrastructure Capital Improvements and related information needed by the Planning Commission upon its request.

To the extent the one year plan and budget pertains to Capital Improvements as defined in Ordinance 60419, and to the extent such Capital Improvements are proposed by the Planning Commission to be funded from sources of funds enumerated in Ordinance 60419 as amended by Ordinance 61250, such one-year plan and budget shall be submitted by the Planning Commission to the Budget Division pursuant to Section Six of Ordinance 60419 for use in developing the Capital Budget for the coming Fiscal Year. The five-year plan and budget shall be delivered to the Mayor.

O. The Planning Commission shall participate in regional planning discussions and programs with regional planning entities and other political subdivisions and their planning instrumentalities.

P. The Planning Commission shall have such other powers as may be necessary to enable it to fulfill its functions, promote City planning and development and carry out the purposes of this chapter.

Q. No ordinance shall be adopted over the negative recommendation of the Planning Commission unless approved by a majority vote of two-thirds of all the members of the Board of Aldermen. (1994 C., § 3.48.070; Ord. No. 71413, § 1, 11-12-2021; Ord. No. 64925, §§ 5, 6, 8, 2000; Ord. No. 64687, § 8, 1999.)

3.48.080 Comprehensive Plan—Contents.

A. The Comprehensive Plan shall be a comprehensive, strategic, long-term, general plan to guide the harmonious development of the City and improve the quality of life for its citizens. The Comprehensive Plan shall comply with RSMo Ch. 89 and with any other provisions of state law concerning City plans, and be a guide to land use in general and identification of appropriate locations for: infrastructure improvements, new construction, renovation and demolition activity, City facilities and related capital improvements.

B. The plan shall be made with the general purpose of guiding and accomplishing a coordinated, adjusted and harmonious development of the City which will, in accordance with present and future needs, best promote health, safety, morals, order, convenience, prosperity and general welfare, as well as efficiency and economy in the process of development, including, among other things, adequate provisions for traffic, the promotion of safety from fire and other dangers, adequate provisions for light and air, the promotion of the healthful and convenient distribution of population, the promotion of good civic design arrangements, wise and efficient expenditure of public funds, and the adequate provision of public utilities and other public requirements all designed to improve the physical conditions for living, to strengthen the economy and provide jobs, and to enlarge human opportunity.

C. The Comprehensive Plan shall consist of text and diagrams, with accompanying maps, charts, plats and other descriptive matter. It shall include:

1. A statement of objectives and policies;

2. The general location, character and extent of streets and other public ways, grounds, places and spaces; the general location and extent of public utilities and terminals, whether publicly or privately owned, the acceptance, widening, removal, extension, relocation, narrowing, vacation, abandonment or change of use of any of the foregoing; the general character, extent and layout of the replanning of blighted districts;

3. A land use element designating the proposed general distribution, location, and extent of uses of the land for housing, business, industry, open space and other categories of public and private use of land and shall include standards of population density and building intensity recommended for the various districts established in the plan;

4. A transportation element designating the general location, character, and extent of existing and proposed streets, boulevards, parkways, rapid transit and subway routes, light rail routes, viaducts, bridges, waterways, parking facilities and public utilities and terminals, whether publicly or privately owned or operated for water, light, sanitation, communication, power, transportation or other purposes; including the removal, relocation, widening, narrowing or abandonment of such facilities;

5. A community facilities element designating the general location and extent of existing and proposed parks, playgrounds, and other recreation facilities, wa-

terfronts, schools and educational facilities, libraries, health facilities, public buildings, grounds and open spaces;

6. An environmental policies element identifying present and foreseeable environmental concerns, whether such concerns are caused by substances or actions originating within or outside the City, and addressing such problems in the planning context by location of facilities such as parks, mass transit facilities, public utility and health facilities and otherwise;

7. A regional element identifying the extent to which areas of the City are functionally, economically or otherwise related to or affected by other parts of the metropolitan region, and identifying areas or problems in which coordination with other political subdivisions or entities in the metropolitan region may be in the City's best interests;

8. Recommendations for implementation of the City Plan, including, but not limited to, recommendations for needed zoning ordinance changes, telecommunications infrastructure, and appropriate environmental policies; and

9. Such other elements as may be determined by the Planning Commission. (1994 C., § 3.48.080; Ord. No. 64687, § 9, 1999.)

3.48.090 Comprehensive Plan—Preparation.

In preparing a Comprehensive Plan, or any amendment or revision of a Comprehensive Plan, the Planning Office shall:

A. Subject to applicable state law and this chapter, define the elements of such Comprehensive Plan, with special attention to the level of detail that belongs in the Comprehensive Plan as distinguished from other plans, such as Neighborhood Plans;

B. Examine alternative approaches used in other communities for preparing a City-wide plan in which there is community consensus, for establishing a framework for major development decisions;

C. Communicate with elected officials, neighborhood organizations and leaders, business, civic and nonprofit organizations and other groups, and the citizens of St. Louis, in order to determine their concerns and goals for the City;

D. Make careful and comprehensive surveys and studies of present conditions and the future potential of the City, with due regard to its relation to neighboring political subdivisions. (1994 C., § 3.48.090; Ord. No. 64687, § 10, 1999.)

3.48.100 Comprehensive Plans—Adoption by Commission.

A. The Planning Commission may amend and revise a proposed Comprehensive Plan, or any amendment or revision of a Comprehensive Plan, submitted to it by the Planning Office prior to adopting such plan, amendment or revision, or it may reject any such plan, amendment or revision in its entirety. It may adopt a Comprehensive Plan as a whole by a single resolution, or may, by successive resolutions, adopt successive parts of a Comprehensive Plan, the parts corresponding with neighborhoods, major geographical sections or divisions of the City, or with functional subdivisions of the subject matter of the Comprehensive Plan, and may adopt any amendment or extension thereof or addition thereto. Before the adoption of the Comprehensive Plan or any part, amendment, revision, extension or addition thereof, the Planning Commission shall hold at least one public hearing thereon, notice of the time and place of which shall be given not less than twenty days previous to the time fixed therefor, by one publication in a daily newspaper of general circulation in the City and in the City Journal.

The adoption of a Comprehensive Plan or of any part, amendment, revision, extension or addition shall be by resolution of the Planning Commission carried by the affirmative votes of a majority of all the members of the Planning Commission at a regular or special meeting thereof. The resolution shall refer expressly to the maps and descriptive and other matter intended by the Planning Commission to form the whole or part of the Comprehensive Plan, and the action taken shall be recorded on the adopted plan or part thereof by the identifying signature of the Secretary of the Planning Commission. An attested copy of the Comprehensive Plan or part thereof shall be certified to the Board of Aldermen and to the City Register, and a copy shall be available in the office of the Recorder of Deeds.

B. The Planning Commission shall update the Comprehensive Plan not less frequently than every ten years, and may, from time to time, as it deems necessary, amend, extend, republish or add to the City Plan. (1994 C., § 3.48.100; Ord. No. 64687, § 4, 1999.)

3.48.110 Commission—Neighborhood Plans, Tropical Plans and other plans.

The Planning Commission may direct the Agency Director to prepare Neighborhood Plans or plans relating to combinations of neighborhoods, Topical Plans,

or other plans addressing issues deemed to be of importance to the City. In all cases the Planning Commission shall have the right to review, modify, and adopt or reject such plans. Any such plan that is determined by the Planning Commission to replace or supplement portions of the Comprehensive Plan shall be adopted only in compliance with all procedural requirements under Section 3.48.100. (1994 C., § 3.48.110; Ord. No. 64687, § 12, 1999.)

3.48.120 Construction in area with Comprehensive Plan.

No street or other public facilities, or no public utility, whether publicly or privately owned, the location, extent and character of which have been included in the Comprehensive Plan or portions thereof, shall be constructed or authorized in the City until the location, extent and character thereof has been submitted to and approved by the Planning Commission. In case of disapproval the Planning Commission shall communicate its reasons to the Board of Aldermen, and the Board of Aldermen, by vote of not less than two-thirds of its entire membership, may overrule the disapproval and, upon the overruling, the Board of Aldermen or the appropriate City department may proceed. If the public facility or utility is one the authorization or financing of which does not fall within the province of the Board of Aldermen, then the submission to the Planning Commission shall be by the board having jurisdiction, and the Planning Commission's disapproval may be overruled by that board by a vote of not less than two-thirds of its entire membership. The acceptance, widening, removal, extension, relocation, narrowing, vacation, abandonment, change of use, acquisition of land for, sale or lease of any street or other public facility is subject to similar submission and approval, and the failure to approve may be similarly overruled. The failure of the Planning Commission to act within sixty days after the date of official submission to it under this section shall be deemed approval under this section. (1994 C., § 3.48.120; Ord. No. 64687, § 13, 1999.)

RSMo:

RSMo 89.380 (2016)—Similar provisions

3.48.130 Platting street lines.

The Planning Commission shall have the power to make and certify to the Board of Aldermen plats of areas on which are indicated the locations of lines recommended by the Planning Commission as the planned or mapped lines of future streets, street extensions, street widenings or street narrowings. The making or certifying of a plat by the Planning Commission shall not in and of itself constitute or be deemed to constitute the opening or establishment of any street or the taking or acceptance of any land for street purposes. The term "streets," as used in this chapter, includes streets, avenues, boulevards, roads, highways, parkways, lanes, alleys, viaducts and other ways. (1994 C., § 3.48.130; Ord. No. 64687, § 14, 1999.)

3.48.140 Official map.

From and after the time the Planning Commission has adopted a major street plan, and has certified a copy of the major street plan to the Board of Aldermen, the Board of Aldermen may establish an official map of the City showing the location of the streets of the whole or of any part of the City theretofore existing and establishing by law as public streets. The Board of Aldermen shall certify the fact of the establishment of the official map to the Recorder of Deeds and shall cause a copy of same to be filed therewith, and a copy shall also be filed with the City Register. (1994 C., § 3.48.140; Ord. No. 64687, § 15, 1999.)

3.48.150 Official map—Changes.

The Board of Aldermen may add to the official map by placing thereon, from time to time, the lines of streets in accordance with plat of any subdivision in the City which shall have been approved and filed of record as provided by law. The Board of Aldermen may make, from time to time, other additions to or modifications of the official map, by placing thereon the planned or mapped lines of future streets, street extensions, widenings, narrowings or vacations, provided, before taking any such action the Board of Aldermen shall hold at least one public hearing thereon, notice of the time and place of which shall be given not less than twenty days previous to the time fixed therefor, by one publication in a daily newspaper of general circulation in the City and in the City Journal, and provided, the proposed addition to or modification of the official map shall be submitted to the Planning Commission for its approval, as provided in Section 3.48.120. In the event of the Planning Commission's disapproval, the additions or modifications shall require the favorable vote of a majority of the entire membership of the Board of Aldermen. Any planned or mapped street line location certified by the Planning Commission to the Board of Aldermen shall be deemed approved by the Planning

Commission without further submission thereof to the Planning Commission. The placing of any planned street or planned street line upon the official map shall not, in and of itself, constitute or be deemed to constitute the opening of any street, or the taking or acceptance of any land for street purposes. (1994 C., § 3.48.150; Ord. No. 64687, § 16, 1999.)

3.48.160 Building in mapped areas

For the purpose of preserving the integrity of the official map, no permit shall be issued for any building or structure or a part thereof on any land located between the planned or mapped line and the existing lines of any established street, as shown on the official map, or between the planned or mapped lines of future streets, as shown on the map. The Board of Adjustment of the City is empowered, upon an appeal filed with it by the owner of any such land, to authorize the grant of a permit for a building or structure or part thereof within any planned or mapped street location in any case in which the Board finds, upon the evidence presented to it upon appeal:

A. That the property will not yield a reasonable return to the owner unless the permit be granted or;

B. That balancing the interest of the City in preserving the integrity of the official map and the interest of the owner in the use and benefits of his property, the grant of the permit is required by considerations of justice and equity.

Before taking any such action, the Board of Adjustment shall hold a hearing thereon, at least ten days' notice of the time and place of which shall be given to the appellant by mail at the address specified by the appellant in his petition. In the event the Board of Adjustment decides to authorize a building permit, it shall have the power to specify the exact location, ground area, height and other details and conditions of extent and character, and also the duration, of the building, structure or part thereof to be permitted. (1994 C., § 3.48.160; Ord. No. 64687, § 17, 1999.)

3.48.170 Building permits—Without access to streets.

No permit for the erection of any building shall be issued unless an existing street or mapped street as shown on the official map gives access to the proposed building. An applicant for a permit may appeal to the Board of Adjustment, a hearing upon the appeal and notice of which shall be held and given as provided in Section 3.48.160. The Board of Adjustment is empowered to authorize a permit, subject to conditions as the Board of Adjustment may impose, when it appears from the evidence that the circumstances of the case do not require the proposed building to be related to existing streets or to mapped streets as shown on the official map and where the permit would not tend to distort or increase the difficulty of carrying out the official map or Comprehensive PLAN of the City. The Board of Public Service is empowered, upon application by an owner of land fronting on an outer roadway of a highway, without access to a street, to designate the outer roadway as a street and the designation by the Board of Public Service shall be deemed in compliance with this section for the purpose of issuance of building permit. (1994 C., § 3.48.170; Ord. No. 64687, § 18, 1999.)

3.48.180 Duties of Cultural Resources Office.

The Cultural Resources Office:

A. Shall provide staff service to the Preservation Board upon its establishment by Ordinance 64689 (BB54CS);

B. On and after the effective date of Ordinance 64689 (BB54CS), shall receive all records and files of the Heritage and Urban Design Office established by Ordinance 57986, as amended;

C. With the approvals of the Preservation Board and the Board of Public Service, may acquire or accept title in the name of the City to land or property, or any interests or easements therein, including historic easements and remainder interests, for conservation or other public purposes;

D. Shall conduct surveys of Cultural Resources and make recommendations to the Preservation Board of sites and districts which the Cultural Resources Office believes should be nominated for landmark, landmark site or historic district status at the local, state or federal level, if such nomination is consistent with or not in conflict with the Comprehensive Plan;

E. Shall develop standards and administer a program for reviewing and approving art in public places, to the extent consistent with or not in conflict with the Comprehensive Plan;

F. Is authorized to implement all duties regarding cultural resource management and historic preservation required under federal law or regulations as shall be delegated by the federal government and/or the State Historic Preservation Officer;

G. Shall have the authority and responsibility to keep the Mayor, the Board of Aldermen, the Planning Commission, the Agency Director, the r Building Commissioner, and the President of the Board of Public Service informed and advised as to all matters relating to historic preservation in the City. (1994 C., § 3.48.180; Ord. No. 64687, § 19, 1999.)

3.48.190 Effective date—Functions and duties.

On and after the effective date of the ordinance codified in this chapter, (1) all functions and duties performed, or powers exercised, prior to the effective date of said ordinance by the Community Development Commission pursuant to any City ordinance (other than Ordinance 56708) shall be performed or exercised by the Planning Commission established by this chapter; (2) except as provided by Ordinance 64688 (B.B. 53), all functions and duties performed, or powers exercised prior to the effective date of the ordinance codified in this chapter by personnel of the Community Development Commission pursuant to any City ordinance shall be performed by personnel of the Planning Commission as assigned by the Planning Commission; (3) except as provided by Ordinance 64688 (B.B. 53), all functions and duties performed, or powers exercised, prior to the effective date of the ordinance codified in this chapter by the Community Development Agency pursuant to any City ordinance shall be performed by the Planning and Urban Design Agency; (4) except as provided by Ordinance 64688 (B.B. 53), all functions and duties performed, or powers exercised, prior to the effective date of the ordinance codified in this chapter by the Community Development Director shall be performed or exercised by the Agency Director; (5) all notices required to be given to any of the Community Development Commission, the Community Development Agency, or the Community Development Director shall be given to Planning Commission, the Planning and Urban Design Agency, or the Agency Director, as the case may be. (1994 C., § 3.48.190; Ord. No. 64687, § 20, 1999.)

3.48.220 Plan for Industrial Expansion, Inc.

The Plan for Industrial Expansion, Inc., is designated as the official agency of the City to aid and assist the development and expansion of industry, commerce and business within the City. Plan for Industrial Expansion, Inc. is authorized to take actions necessary to further the development and expansion of industry, commerce and business within the City. (1994 C., § 3.48.220; Ord. No. 53595, § 1, 1965.) See also Ch. 3.84

RSMo:

RSMo 100.300 et seq. (2016) The planned industrial expansion law

Chapter 3.50

LIBRARIES—DEPOSIT OF CITY REPORTS

Constitution:

Art. 9 § 10 State aid to local public libraries

City Counselor Ops.: 8097

Sections:

3.50.010 Municipal reference library—Designated.

3.50.020 Municipal reference library—Depository of publications and reports.

3.50.025 Municipal reference library—Deposit of nonessential records.

3.50.030 Archival library—Establishment.

3.50.040 Archival library—Deposit of documents.

3.50.050 Archival library—Disposition of records.

3.50.060 St. Louis Public Library—Designated City information center.

3.50.010 Municipal reference library—Designated.

The municipal reference library in the St. Louis Public Library located at 1301 Olive Street in the City of St. Louis is hereby designated an official depository library for all printed reports, documents, and publications issued by the various departments, boards, agencies and commissions of the City. (1948 C., Ch. 36, § 5; 1960 C., § 27.010; 1994 C., § 3.50.010; Ord. No. 62042, § 2(part), 1990.)

Charter:

Art. I § 1(15) Authority of city to acquire, maintain and regulate public buildings

RSMo:

RSMo 182.410 et seq. (2016) Provisions on libraries in cities of 300,000 or more

3.50.020 Municipal reference library—Depository of publications and reports.

Whenever any department, board, agency or commission of the City issues any printed report, document or publication, it shall be the duty of such department,

board, agency or commission to cause at least one copy thereof to be promptly deposited in the municipal reference library. (1948 C., Ch. 36, § 6; 1960 C., § 27.020; 1994 C., § 3.50.020; Ord. No. 62042, § 2(part), 1990.)

3.50.025 Municipal reference library—Deposit of nonessential records.

Whenever the archival library has in its possession noncurrent records which have been recorded on microfilm, said original noncurrent records shall be offered to the municipal reference library before being otherwise disposed of as prescribed by Section 3.50.050 of this chapter. (1994 C., § 3.50.025; Ord. No. 62042, § 2(part), 1990.)

3.50.030 Archival library—Establishment.

The Comptroller shall establish an archival library in the City as an official depository of all reports, correspondence, noncurrent records and documents, manuals and/or publications of all City departments, boards, agencies and/or commissions of the City. (1960 C., § 27.011; 1994 C., § 3.50.030; Ord. No. 53602, § 1, 1965.)

3.50.040 Archival library—Deposit of documents.

Whenever any department, board, agency or commission of the City issues any document, report, manual or publication, one copy shall be deposited in the archival library for a period of thirty days to be microfilmed for the permanent record of the City. This shall be in addition to the copy deposited with other depositories of the City.

Whenever any department, board, agency or commission of the City no longer needs its records, documents, correspondence or reports for its current work, the records shall be forwarded to the archival library as custodian of records. (1960 C., § 27.021; 1994 C., § 3.50.040; Ord. No. 53602, § 1, 1965.)

3.50.050 Archival library—Disposition of records.

Whenever the archival library has in its possession current records of the City it shall make a permanent microfilm copy of them and return them to the originator.

Whenever the archival library has in its possession noncurrent records of any department it shall record them on microfilm as prescribed by state statutes, if they are original records. If the records are nonessential as determined by the City Counselor or have been filmed, they may be disposed as prescribed by law upon concurrence of the City Counselor. (1960 C., § 27.022; 1994 C., § 3.50.050; Ord. No. 53602, § 1, 1965.)

3.50.060 St. Louis Public Library—Designated City information center.

In addition to the copy of any printed report, document or publication required to be deposited in the municipal reference library as prescribed in Section 3.50.020 of this chapter:

A. The City Register shall deposit and keep current one copy of the Revised Code of the City of St. Louis, 1980 and one copy of each issue of the City Journal in each branch of the St. Louis Public Library; and

B. Whenever any department, board, agency or commission of the City shall prepare and publish any brochure or other information for distribution to the general public, it shall be the duty of said department, board, agency or commission to deposit sufficient numbers of said brochures or other information in all branches of the St. Louis Public Library for distribution to the general public. (1994 C., § 3.50.060; Ord. No. 62042, § 2(part), 1990.)

Chapter 3.52

CITY JOURNAL

City Counselor Ops.: 8178, 9234

Sections:

3.52.010 Official designation—Issuance.

3.52.020 Contents—Required.

3.52.030 Contents—Restricted.

3.52.040 City Register duties.

3.52.050 Contract for printing—Awarded by bids.

3.52.060 Contract for printing—Time—Bond—Forfeiture.

3.52.070 Contract for printing—Proceedings of Board of Aldermen and Board of Public Service.

3.52.080 Contract for printing—Copies.

3.52.090 Distribution of copies and charges for City Journal.

3.52.100 Journal to be bound—Prima facie evidence.

3.52.110 Preparation of material for publication.

3.52.120 Register authorized to revise matter submitted.

3.52.130 Expenditures and payments.

3.52.010 Official designation—Issuance.

The City shall publish a newspaper and publication printed in the English language which shall be known as "The City Journal. The official publication of the City of St. Louis, Missouri." Such publication shall be issued on Tuesday of each week, except when Tuesday falls upon a legal holiday, in which event such publication shall be issued on the day following. (1948 C., Ch. 2, § 91; 1960 C., § 16.010; 1994 C., § 3.52.010.)

Charter:

Art. XV § 30 Public printing and publishing

3.52.020 Contents—Required.

There shall be published weekly in the City Journal all publications, notices and advertisements and other matters whatsoever which the City now publishes or may hereafter be required by ordinance to publish. (1948 C., Ch. 2, § 92; 1960 C., § 16.020; 1994 C., § 3.52.020.)

Charter:

Art. XXV § 12 Where city notices shall be published

City Counselor Ops.: 9461

3.52.030 Contents—Restricted.

There shall be printed in the City Journal official matters only and other matters as are strictly pertinent to the business affairs of the City, and those required by the Charter and ordinances to be published. No paid advertising shall be inserted therein. (1948 C., Ch. 2, § 93; 1960 C., § 16.030; 1994 C., § 3.52.030.)

3.52.040 City Register duties.

The Register shall have control and direction of the City Journal and shall supervise the publication, printing and distribution thereof. He shall adopt a form of publication to meet the requirements of this chapter, and shall establish rules and regulations pertaining to the printing, mailing and distribution of same. No additional salary shall be allowed the Register or any other officer or employee of the City for any services required to be performed under the provisions of this chapter. (1948 C., Ch. 2, § 94; 1960 C., § 16.040; 1994 C., § 3.52.040.)

3.52.050 Contract for printing—Awarded by bids.

The publication of the City Journal may be done by contract with some responsible printing establishment, and the contract shall be made upon bids and in the same manner as other contracts are now required to be let under the provisions of the Charter and ordinances. Provided further, in lieu of contracting for the printing of the City Journal, the Supply Commissioner may perform such printing through the Multigraph Section of the Supply Division, and when so elected all other provisions relating to the City Journal shall be complied with as their meanings are harmonized to adjust for the City printing the City Journal. (1948 C., Ch. 2, § 95; 1960 C., § 16.050; 1994 C., § 3.52.050; Ord. No. 59839, § 1, 1986.)

3.52.060 Contract for printing—Time—Bond—Forfeiture.

The contract required by Section 3.52.050 shall be let for a period of one year, beginning on June 25 of each year. All contractors under the provisions of this chapter shall be required to give good and sufficient bond for the faithful performance of the contract. The contract shall be let to the lowest and best bidder, quality of work and prompt delivery to be considered, and the contract shall provide for the forfeiture of the contract on the part of any bidder if the bidder fails to perform the contract as provided. (1948 C., Ch. 2, § 96; 1960 C., § 16.060; 1994 C., § 3.52.060.)

3.52.070 Contract for printing—Proceedings of Board of Aldermen and Board of Public Service.

The contract for publishing the City Journal shall provide for the printing and furnishing in pamphlet form three hundred and fifty copies of the proceedings of the Board of Aldermen, as may be published in the City Journal. The contract for publishing shall also provide for the printing and furnishing in pamphlet form one hundred copies of the proceedings of the Board of Public Service, as may be published in the City Journal. The pamphlet copies of the proceedings of the Board of Aldermen and of the Board of Public Service shall be furnished on or before Thursday of each week next following the publication of the City Journal containing such proceedings. The contract shall fix the price of the printing and furnishing of such extra copies. (1948 C., Ch. 2, § 97; 1960 C., § 16.070; 1994 C., § 3.52.070.)

3.52.080 Contract for printing—Copies.

The contract for the publication of the City Journal shall provide for a sufficient number of copies of

the City Journal to supply the requirements of the different departments and offices of the City and to meet the demands of interested persons and the public generally. (1948 C., Ch. 2, § 98; 1960 C., § 16.080; 1994 C., § 3.52.080.)

3.52.090 Distribution of copies and charges for City Journal.

A. Two (2) copies of each issue of the City Journal shall be furnished gratuitously to each newspaper regularly published in the City and up to ten (10) copies of each issue of the City Journal shall be furnished gratuitously to every public library, law library, public institution and civic organization in the City upon application for same. The Register shall at all times keep a sufficient number of copies of the City Journal on hand to meet the demand therefor.

B. As of August 18, 1989, copies of each issue of the City Journal shall be sold to all others requesting same at a charge of one dollar ($1.00) per single copy, said charge to include the cost of mailing, and yearly subscriptions shall be sold to all others requesting same at a charge of twenty-six dollars ($26.00) per yearly subscription, said charge to include the cost of mailing, and all proceeds from such charges shall be paid over to General Revenue Fund of the City.

C. Annually thereafter, but not later than April 1 of each year, the City Register shall prepare a revised schedule of charges for the City Journal, such schedule to be based on the actual costs of printing and mailing said Journal for the previous year, and shall distribute said schedule to all previous year's subscribers and elected and appointed officials. Said schedule shall thereafter be the basis for charges for the City Journal on the third Tuesday of April of said year and shall remain in effect until a new schedule is distributed. (1948 C., Ch. 2, § 99; 1960 C., § 16.090; 1994 C., § 3.52.090; Ord. No. 61425, § 2, 1989; Ord. No. 58444, § 1, 1981; Ord. No. 50986, § 1, 1962.)

City Counselor Ops.: 8789

3.52.100 Journal to be bound—Prima facie evidence.

The Register shall have a continuous series of the City Journal bound as completed annually and deposited with his certificate in the office of the Register of the City. Copies of the contents of any part of the bound series certified by the Register shall be received in judicial proceedings as prima facie evidence of the truth of the contents. (1948 C., Ch. 2, § 100; 1960 C., § 16.100; 1994 C., § 3.52.100.)

3.52.110 Preparation of material for publication.

The Clerk of the Board of Aldermen shall prepare and present to the Register copies of ordinances, resolutions and other matters required to be published, for publication in the City Journal. The secretary of the Board of Public Service shall likewise prepare and submit to the Register all matters and proceedings of the Board of Public Service to be published in the City Journal. It shall be the duty of all officers and employees of the City to properly prepare and submit matters to be published in the City Journal. (1948 C., Ch. 2, § 101; 1960 C., § 16.110; 1994 C., § 3.52.110.)

Charter:

Art. IV § 10 Entry of ordinances in journal

Art. IV § 21 Publication of ordinances

McQuillin:

16.76 Publication of ordinances, generally

3.52.120 Register authorized to revise matter submitted.

The Register shall be empowered and authorized to revise any matter submitted by officers and employees of the City for publication in the City Journal, except records of proceedings of the Board of Aldermen and records of proceedings of the Board of Public Service. (1948 C., Ch. 2, § 102; 1960 C., § 16.120; 1994 C., § 3.52.120.)

3.52.130 Expenditures and payments.

All expenditures and payments necessary to carry out the provisions of this chapter shall be made upon the voucher of the Register. (1948 C., Ch. 2, § 103; 1960 C., § 16.130; 1994 C., § 3.52.130.)

Chapter 3.54

CITY VEHICLES

City Counselor Ops.: 8178

Sections:

3.54.010 Markings.
3.54.020 Duty of officers as to marking.
3.54.030 Maintenance rate.
3.54.040 Municipal garage—Superintendent.
3.54.050 Qualifications of superintendent.
3.54.060 Rules for use of vehicles.

3.54.080 Sheriff and deputy cars—May be parked on any street.
3.54.090 Sheriff and deputy cars—Placards.
3.54.100 Sheriff and deputy cars—Exempt from parking meter fees.
3.54.110 Sheriff and deputy cars—Restrictions on parking.
3.54.120 Penalty for violation.

3.54.010 Markings.

All vehicles belonging to the City shall have the word "City" painted on each side in Roman letters, at least one and one-quarter inches long, or shall be marked on both sides with the seal of the City not less than three inches in diameter. In addition the vehicles used by the Police Department shall have the letters "P.D."; those used by the Health Division shall have the letters "H.D." and those used by the Fire Department shall have the letters "F.D." painted on each side. Each department shall number their vehicles consecutively, beginning with number one. (1948 C., Ch. 2, § 104; 1960 C., § 130.010; 1994 C., § 3.54.010; Ord. No. 45291, § 1, 1950.)

3.54.020 Duty of officers as to marking.

It shall be the duty of every City officer having vehicles under his charge to have the vehicles marked in accordance with Section 3.54.010. (1948 C., Ch. 2, § 105; 1960 C., § 130.020; 1994 C., § 3.54.020.)

3.54.030 Maintenance rate.

In each instance where by this Code or by ordinance an officer or employee of the City is required to furnish his own conveyance to be maintained by the City, the officer or employee shall be allowed thirty dollars per month for maintenance. The thirty dollars for maintenance of conveyances shall also apply to three of the employees in the License Collector's Office, who furnish their own conveyances. (1948 C., Ch. 2, § 106; 1960 C., § 130.030; 1994 C., § 3.54.030.)

3.54.040 Municipal garage—Superintendent.

There is established a municipal garage for the housing, care and repair of all motor driven automobiles and trucks, except those used in the Fire Department. The garage is to be under the direction and control of a superintendent, who shall be appointed by the Comptroller. (1948 C., Ch. 2, § 107; 1960 C., § 130.040; 1994 C., § 3.54.040.)

3.54.050 Qualifications of superintendent.

The superintendent shall be a skilled mechanic qualified to perform his duties in the management of the municipal garage, including the supervision and direction of repairs and the ordering of supplies for the stock room. (1948 C., Ch. 2, § 108; 1960 C., § 130.050; 1994 C., § 3.54.050.)

3.54.060 Rules for use of vehicles.

Rules in detail not inconsistent with the provisions of this Code governing the use of all motor driven vehicles in the service of the City shall be prescribed by the Comptroller. These rules shall be printed in convenient form and furnished to all officers and employees of the City using such vehicles. (1948 C., Ch. 2, § 109; 1960 C., § 130.060; 1994 C., § 3.54.060.)

City Counselor Ops.: 8811

3.54.080 Sheriff and deputy cars—May be parked on any street.

The Sheriff of the City and his deputies shall be permitted to park their privately owned automobiles, while on official business upon any street, avenue, road, boulevard or alley within the City limits. (1994 C., § 3.54.080; Ord. No. 56736, § 1, 1974.)

3.54.090 Sheriff and deputy cars—Placards.

The Sheriff shall issue to his deputies placards for use in their privately owned automobiles while on official business. These placards are to be clearly displayed, one in the rear window and one on the windshield. Each placard shall bear the Great Seal of the State of Missouri and the words "Official Business Deputy Sheriff City of St. Louis," the year for which issued, the badge and identification number of the deputy and the signature of the Sheriff. The sheriff shall limit the issuance of placards only to deputies assigned to serving writs and processes of the court or the transportation of prisoners. (1994 C., § 3.54.090; Ord. No. 56736, § 2, 1974.)

3.54.100 Sheriff and deputy cars—Exempt from parking meter fees.

The Sheriff and his deputies while parking their privately owned automobiles under the provisions of Sections 3.54.080—3.54.110 shall be exempt from paying parking meter fees. (1994 C., § 3.54.100; Ord. No. 56736, § 3, 1974.)

3.54.110 Sheriff and deputy cars—Restrictions on parking.

Nothing contained in Sections 3.54.080—3.54.110 shall authorize any person to park his automobile in a

manner as to obstruct or obscure any traffic sign or signal, or as to create a traffic hazard. It is unlawful for a deputy to display upon his automobile the official placard at any time except while actually engaged in official business and it shall be unlawful for a deputy to give or lend his placard to another person not authorized to use the same by the Sheriff. (1994 C., § 3.54.110; Ord. No. 56736, § 4, 1974.)

3.54.120 Penalty for violation.

Any person who violates provisions of Sections 3.54.080—3.54.110 shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than ten dollars nor more than one hundred dollars. (1994 C., § 3.54.120; Ord. No. 56736, § 5, 1974.)

Chapter 3.56

PUBLIC BUILDINGS AND PROPERTY

Charter:

Art. I § 1(15) Public buildings and other property

Art. XIII § 15(e) Division of building and inspection

Sections:

Part I. City Hall and Municipal Courts

3.56.010 City hall established.
3.56.020 Municipal office and court building established.
3.56.030 Offices located in City Hall.
3.56.040 Mayor to assign offices.
3.56.050 Offices—Divisions of Traffic, Parks, Recreation and Forestry.
3.56.060 Offices—Other departments.
3.56.070 Offices—Purpose.
3.56.080 Offices—Removal—When not allowed.
3.56.090 Offices—Removal—Procedure.

Part II. Henry W. Kiel Auditorium

3.56.140 Municipal auditorium to be known as Henry W. Kiel Auditorium.
3.56.150 Municipal Auditorium Commission—Established—Members.
3.56.160 Municipal Auditorium Commission—Organization.
3.56.170 Municipal Auditorium Commission—Duties—Charges.
3.56.180 Manager—Appointment.
3.56.190 Manager—Duties.
3.56.200 Appointment of subordinate officers and employees.
3.56.210 Budget.
3.56.220 Collections to be deposited with Treasurer.
3.56.230 Payment of accounts.
3.56.240 Special occupancy.

Part III. Soldiers' Memorial Building

3.56.290 Commission—Established—Members.
3.56.300 Commission—Organization.
3.56.310 Commission—Duties.
3.56.320 Superintendent.
3.56.330 Budget.
3.56.340 Acceptance of gifts and handling of revenues.
3.56.350 Payment of accounts.

Part IV. Refreshment Stands in Public Buildings

3.56.400 Missouri Commission for the Blind to be lessee.
3.56.410 Rent.
3.56.420 Purpose of Part IV.
3.56.430 Cancellation of lease.
3.56.440 Forfeiture of lease.
3.56.450 Removal of fixtures.
3.56.460 Stands prohibited in rotunda.

Part V. Discrimination in Public Places

3.56.510 Discrimination prohibited.

Part VI. U.S. Flag in Public Places

3.56.560 Display.

PART I. CITY HALL AND MUNICIPAL COURTS

3.56.010 City hall established.

The building erected, owned and controlled by the City, situated on and between Twelfth, Thirteenth, and Market Streets, and Clark Avenue is established as a City Hall. (1948 C., Ch. 54, § 20; 1960 C., § 110.010; 1994 C., § 3.56.010.)

3.56.020 Municipal office and court building established.

The building erected, owned and controlled by the City, situated on and between Thirteenth, Fourteenth, and Market Streets, and Clark Avenue, is established as a municipal office building and as the building where the City Courts shall be located, the building to be known as the Municipal Courts Building. (1948 C., Ch. 54, § 21; 1960 C., § 110.020; 1994 C., § 3.56.020.)

3.56.030 Offices located in City Hall.

The Mayor's Office, the chamber and other quarters of the Board of Aldermen, the Comptroller's Office and the Law Department shall be located in the City Hall. (1948 C., Ch. 54, § 22; 1960 C., § 110.030; 1994 C., § 3.56.030.)

3.56.040 Mayor to assign offices.

The assignment of offices in the City Hall and in the municipal courts building shall be made by the Mayor. (1948 C., Ch. 54, § 23; 1960 C., § 110.040; 1994 C., § 3.56.040.)

3.56.050 Offices—Divisions of Traffic, Parks, Recreation and Forestry.

The Division of Traffic of the Department of Streets, the Divisions of Parks, of Recreation and of Forestry in the Department of Parks, Recreation and Forestry, shall establish, operate and maintain main offices or a branch thereof for the convenience of the public, within City buildings now located or to be located within the area bounded north by Pine, east by Eleventh, south by Spruce and west by Fifteenth streets in the City, on or before January 1, 1965. (1960 C., § 110.050; 1994 C., § 3.56.050; Ord. No. 52899, § 1, 1964.)

3.56.060 Offices—Other departments.

All other departments administering the affairs of the City government together with their various divisions where necessary, shall establish, operate and maintain main offices or a branch thereof for the convenience of the public, within City buildings now located or to be located within the area bounded north by Pine, east by Eleventh, south by Spruce and west by Fifteenth streets in the City, on or before January 1, 1965. (1960 C., § 110.060; 1994 C., § 3.56.060; Ord. No. 52899, § 2, 1964.)

3.56.070 Offices—Purpose.

All main or branch offices shall be equipped in a manner as to provide first instance information to citizens touching any relevant or appropriate matter causing citizens to visit the office, or an employee or employees of the departments or their divisions shall be made available to the public in a building within the area set forth in Sections 3.56.050 and 3.56.060. (1960 C., § 110.070; 1994 C., § 3.56.070; Ord. No. 52899, § 3, 1964.)

3.56.080 Offices—Removal—When not allowed.

No City department or division shall remove any existing main or branch office beyond the area bounded as provided in Section 3.56.050 when the Board of Aldermen is or shall be in recess for thirty continuous days or more. (1960 C., § 110.080; 1994 C., § 3.56.080; Ord. No. 52899, § 4, 1964.)

3.56.090 Offices—Removal—Procedure.

Whenever it is decided to remove any existing main or branch office of any department or division beyond the area bounded as provided in Section 3.56.050 the Director of the Department shall notify the Clerk of the Board of Aldermen of the decision at least ninety days before the date of the actual removal. Failure to comply with the provisions of this section and of Section 3.56.080 shall render the removal unlawful and the costs and expenses of the removal shall not be authorized or paid. (1960 C., § 110.090; 1994 C., § 3.56.090; Ord. No. 52899, § 5, 1964.)

PART II. HENRY W. KIEL AUDITORIUM

City Counselor Ops.: 9484

3.56.140 Municipal auditorium to be known as Henry W. Kiel Auditorium.

The Municipal Auditorium and Community Center Building, located at Market and Fourteenth Streets, shall be known and designated as the "Henry W. Kiel Auditorium."

All laws or ordinances relating to the Municipal Auditorium and Community Center Building shall apply to the "Henry W. Kiel Auditorium." (1948 C., Ch. 54, § 2; 1960 C., § 111.010; 1994 C., § 3.56.140.)

3.56.150 Municipal Auditorium Commission—Established—Members.

There is established a Municipal Auditorium Commission to consist of seventeen members as follows: The Mayor, the Comptroller, the President of the Board of Aldermen, the City Counselor (who shall be attorney for the Commission), the Director of Streets, and the Director of Public Safety; five members of the

Board of Aldermen, to be selected by the Board of Aldermen, and not more than three of whom shall be members of the same political party, provided the party representation in the board is such as to permit the above suggested selection; and seven additional members, who shall be appointed by the Mayor and to hold office during his pleasure. These additional members shall consist of one representative each of the St. Louis Convention and Tourism Bureau, the Associated Retailers of St. Louis, the Hotel Association of St. Louis, an ex-service man, and three representatives from organizations or groups as the Mayor may determine, at least two of whom shall be women. All the members of the Commission shall serve as without compensation, and, except the officials named above shall hold no other public office. (1948 C., Ch. 54, § 3; 1960 C., § 111.020; 1994 C., § 3.56.150.)

Editor's Note:

This section has been editorially amended to reflect the name change of the convention and tourism bureau.

3.56.160 Municipal Auditorium Commission—Organization.

The Mayor shall call a meeting of the Commission which will organize with the election of a Chairman and other officers and committees from the membership of the Commission as may be decided upon, to designate the time and place for the holding of its meetings and for the adoption of other by-laws as deemed necessary for the proper transaction of its business. (1948 C., Ch. 54, § 4; 1960 C., § 111.030; 1994 C., § 3.56.160.)

As to secretary of commission, see Section 3.56.190.

3.56.170 Municipal Auditorium Commission—Duties—Charges.

The Commission shall act in an advisory capacity in the management, control and use of the Henry W. Kiel Auditorium, and shall draft rules and regulations in connection therewith as necessary or desirable, cooperating with civic organizations working to secure events for which the Henry W. Kiel Auditorium is appropriate and which will be of benefit to the City. The Commission shall establish a schedule of charges for the use of the Henry W. Kiel Auditorium. In cases where it is necessary to secure the convention of an organization from which the return to the City is considerable due to the attendance drawn thereby, the Commission may exempt the organization from the payment of charges either in whole or in part. (1948 C., Ch. 54, § 5; 1960 C., § 111.040; 1994 C., § 3.56.170.)

3.56.180 Manager—Appointment.

The Mayor is authorized to appoint, in accordance with the Charter and ordinances of the City, a manager of the Henry W. Kiel Auditorium. (1948 C., Ch. 54, § 6; 1960 C., § 111.050; 1994 C., § 3.56.180.)

3.56.190 Manager—Duties.

The manager appointed by the Mayor under the provisions of Section 3.56.180 shall be the executive head of the Henry W. Kiel Auditorium, working under the rules and regulations of the Commission and shall act as Secretary to the Commission, if the Commission so desires. (1948 C., Ch. 54, § 7; 1960 C., § 111.060; 1994 C., § 3.56.190.)

3.56.200 Appointment of subordinate officers and employees.

All subordinate officers and all employees of the Henry W. Kiel Auditorium shall be appointed by the manager in accordance with the Charter and ordinances of the City. (1948 C., Ch. 54, § 8; 1960 C., § 111.070; 1994 C., § 3.56.200.)

3.56.210 Budget.

The Commission shall prepare and submit to the Board of Estimate and Apportionment, through the Mayor, a budget providing for the operating expenses of the Henry W. Kiel Auditorium. (1948 C., Ch. 54, § 9; 1960 C., § 111.080; 1994 C., § 3.56.210.)

3.56.220 Collections to be deposited with Treasurer.

All moneys collected by or from the use of the Henry W. Kiel Auditorium shall be deposited with the Treasurer of the City. (1948 C., Ch. 54, § 10; 1960 C., § 111.090; 1994 C., § 3.56.220.)

3.56.230 Payment of accounts.

All accounts shall be paid by vouchers of the Commission properly authenticated by the signature of the President and other officers as provided by its by-laws and drawn by the Comptroller on the Treasurer of the City. (1948 C., Ch. 54, § 11; 1960 C., § 111.100; 1994 C., § 3.56.230.)

3.56.240 Special occupancy.

The Commission may set aside space in the Henry W. Kiel Auditorium to be occupied by the St. Louis Convention and Tourism Bureau as offices, to facilitate

its civic activities in connection with securing of events to meet in St. Louis and in the Henry W. Kiel Auditorium and for carrying on the service which the Bureau renders to conventions in session. The charge for office space and for the necessary light, heat, water and janitor service for the same, shall be as the Commission determines.

The Commission may also set aside space for the headquarters of war veterans' organizations, upon terms as the Commission determines. (1948 C., Ch. 54, § 12; 1960 C., § 111.110; 1994 C., § 3.56.240.)

Editor's Note:

This section has been editorially amended to reflect the name change of the convention and tourism bureau.

PART III. SOLDIERS' MEMORIAL BUILDING

3.56.290 Commission—Established—Members.

There is established a Soldiers' Memorial Building Commission, to consist of ten members, as follows: The Mayor, Comptroller, President of the Board of Aldermen, Director of Public Safety, Chairman of the Public Welfare Committee of the Board of Aldermen, and five other citizens each representing a different veterans' organization to be appointed by the Mayor, one for a term ending on May 26, 1960, two for a term ending on May 26, 1961, and two for a term ending on May 26, 1962. Thereafter, the appointments shall be for three years and until their successors have been appointed and qualified. Members of the Commission appointed before December 22, 1958, shall continue to serve until the expiration of the term for which they were appointed. In case of death or resignation the appointment of a successor shall be for the unexpired time. (1948 C., Ch. 54, § 13; 1960 C., § 112.010; 1994 C., § 3.56.290; Ord. No. 49189, § 1, 1958; Ord. No. 48795, § 1, 1958.)

3.56.300 Commission—Organization.

The Mayor shall call a meeting of the Commission, of which the Superintendent of Soldiers Memorial shall be Chairman. The Chairman shall call the meeting to order and the first order of business shall be the election of any other officers from the membership of the Commission as may be decided upon, to designate the time and place for the holding of its meetings and for the adoption of other by-laws as deemed necessary for the proper transaction of business. The Mayor, Comptroller, President of the Board of Alderman and Director of Public Safety may designate others to represent them at meetings of the Commission, with power to vote. (1948 C., Ch. 54, § 14; 1960 C., § 112.020; 1994 C., § 3.56.300; Ord. No. 58593, § 1, 1982.)

3.56.310 Commission—Duties.

The Commission shall act in an advisory capacity in the management, control and use of the Soldiers' Memorial Building, and shall draft such rules and regulations in connection therewith as necessary or desirable. The Commission shall establish a schedule of charges for the use of the Soldiers' Memorial Building, and may, at its discretion, exempt organizations from the payment of charges, either in whole or in part. (1948 C., Ch. 54, § 15; 1960 C., § 112.030; 1994 C., § 3.56.310.)

3.56.320 Superintendent.

There is hereby created within the Board of Public Service, in the Classified Service, the position Soldiers Memorial Superintendent who shall be appointed by the President of the Board of Public Service in accordance with the provisions of Article XVIII of the Charter. The Soldier's Memorial Superintendent shall be in general charge of the building, shall be Chairman of the Commission, and may appoint a Secretary to the Commission who need not be a member of the Commission; provided that such Secretary shall serve without remuneration and will not have a vote or a voice on the Commission if not a member of the Commission. (1948 C., Ch. 54, § 16; 1960 C., § 112.040; 1994 C., § 3.56.320; Ord. No. 64561, § 2, 1999; Ord. No. 58593, § 2, 1982.)

3.56.330 Budget.

The Commission shall prepare and submit to the Board of Estimate and Apportionment, through the Mayor, a budget for the operating expenses of the Soldiers' Memorial Building. (1948 C., Ch. 54, § 17; 1960 C., § 112.050; 1994 C., § 3.56.330.)

3.56.340 Acceptance of gifts and handling of revenues.

The Superintendent of Soldiers Memorial, with the approval of the Commission is authorized to accept gifts, contributions and grants for the benefit of the Soldiers Memorial, on behalf of the Commission and in the name of the City of St. Louis. Such gifts, contributions and grants shall be used solely for the purposes indicated, and if in the form of money, shall be deposited into a special account by the Comptroller. The Comptroller shall draw warrants on said account only

for the purposes of carrying out the terms and conditions of the gift, contribution or grant. Further, all monies collected from the use of the Soldiers Memorial Building shall be deposited by the Comptroller into this special account and shall be used solely for the benefit of Soldiers Memorial. The Superintendent shall annually provide a written report to the Commission detailing the source of all such gifts and the expenditures resulting therefrom. (1948 C., Ch. 54, § 18; 1960 C., § 112.060; 1994 C., § 3.56.340; Ord. No. 58593, § 3, 1982.)

3.56.350 Payment of accounts.

All accounts shall be paid by vouchers of the Commission, prepared and authenticated by the signature of the Chairman of the Commission and such other officer as may be provided by its by-laws, and drawn by the Comptroller on the Treasurer of the City. (1948 C., Ch. 54, § 19; 1960 C., § 112.070; 1994 C., § 3.56.350.)

PART IV. REFRESHMENT STANDS IN PUBLIC BUILDINGS

City Counselor Ops.: 7976

3.56.400 Missouri Commission for the Blind to be lessee.

The Comptroller is authorized to lease to the Missouri Commission for the Blind, from time to time, places in any building or property owned or under the control of the City as the Comptroller may determine, with the approval of the Board of Estimate and Apportionment. This space shall be used by the Missouri Commission for the Blind for the purpose of establishing and maintaining stands or booths for the sale at retail of lunches, tobacco and smokers' articles and chewing gum, candy and periodicals, and similar articles. (1948 C., Ch. 54, § 26; 1960 C., § 113.010; 1994 C., § 3.56.400.)

3.56.410 Rent.

For the privilege granted in this part, the Missouri Commission for the Blind shall pay the City an annual rental of two dollars and fifty cents per square foot. All rentals shall be payable semi-annually, in advance. (1948 C., Ch. 54, § 27; 1960 C., § 113.020; 1994 C., § 3.56.410.)

3.56.420 Purpose of Part IV.

The privileges granted in this part are intended to aid the Missouri Commission for the Blind in finding employment for blind men and women, in order that they may not become public charges, and nothing in this part or in the leases authorized shall be construed as to authorize the Missouri Commission for the Blind to utilize the space for any purpose other than furnishing means of livelihood to blind men and women, except insofar as necessary to employ others in a subordinate capacity, in which event the contract of employment shall be made subject to the approval of the Comptroller. The Missouri Commission for the Blind shall not be authorized to sublease, sell or otherwise dispose of the privileges granted in this part to any person other than blind men and women. (1948 C., Ch. 54, § 28; 1960 C., § 113.030; 1994 C., § 3.56.420.)

3.56.430 Cancellation of lease.

In the event that space leased under the authority granted in this part shall be needed for use by any municipal or state department this part may be repealed, and thereupon the lease provided for shall be cancelled and the privileges granted shall end. (1948 C., Ch. 54, § 29; 1960 C., § 113.040; 1994 C., § 3.56.430.)

3.56.440 Forfeiture of lease.

If the rent provided in Section 3.56.410 is not paid when due, or if any of the terms of this part shall be violated by the Missouri Commission for the Blind, then the lease authorized shall be forfeited and the Missouri Commission for the Blind shall surrender possession of the leased space to the City. (1948 C., Ch. 54, § 30; 1960 C., § 113.050; 1994 C., § 3.56.440.)

3.56.450 Removal of fixtures.

In the event this part is repealed or that the lease authorized is cancelled, forfeited, revoked or otherwise terminated, the Missouri Commission for the Blind shall, at its own cost and expense, immediately remove its store fixtures and other belongings. (1948 C., Ch. 54, § 31; 1960 C., § 113.060; 1994 C., § 3.56.450.)

3.56.460 Stands prohibited in rotunda.

No stands are to be permitted in the rotunda of public buildings. (1948 C., Ch. 54, § 32; 1960 C., § 113.070; 1994 C., § 3.56.460.)

PART V. DISCRIMINATION IN PUBLIC PLACES

3.56.510 Discrimination prohibited.

The exclusion of, or discrimination against, any person solely because of race, creed or color, or for any reason not sanctioned by law and not applicable alike to persons generally in the use of the accommodations

or service in public places is prohibited. Whenever any agent or employee shall so exercise any function, or employ any power with which he is charged or entrusted as to violate any provisions of this section, both he and his principal or employer shall be held equally responsible and liable. (1948 C., Ch. 54, § 24; 1960 C., § 114.010; 1994 C., § 3.56.510.)

PART VI. U.S. FLAG IN PUBLIC PLACES

3.56.560 Display.

A flag staff shall be provided upon and over the courthouse, City Hall, Municipal Courts Building, workhouse, industrial school, sanitarium, infirmary, each hospital, each fire engine house, each police station, and the building in each public park designated by the Commissioner of Parks and Recreation, and the United States flag shall be displayed thereon during ordinary business hours in the usual manner on each day except Sunday, weather permitting. (1948 C., Ch. 54, § 25; 1960 C., § 115.010; 1994 C., § 3.56.560.)

Chapter 3.57

ARTS AND HUMANITIES COMMISSION

Sections:

3.57.010 Composition.
3.57.020 Officers.
3.57.030 Executive director.
3.57.040 Budget.
3.57.050 Meetings.
3.57.060 Functions and duties.
3.57.070 Authority to lend support.
3.57.080 Review of applications—Endorsement.
3.57.090 Authority to recommend contractual agreements.
3.57.100 Criteria for evaluation.
3.57.110 Assistance to fund-raising efforts.
3.57.120 Authority to accept gifts.

3.57.010 Composition.

A. There shall be and is hereby established a commission consisting of eleven (11) members to be known as the Arts and Humanities Commission. Said Commission shall consist of eleven (11) members appointed by the Mayor of the City. Such members shall be chosen for their demonstrated interest in the arts and humanities.

B. Of the eleven (11) persons appointed by the Mayor, four (4) shall be initially appointed for terms of three (3) years each, four (4) for terms of two (2) years each, and three (3) for terms of one (1) year each. All persons thereafter appointed shall be appointed for terms of three (3) years by the Mayor. No person, however, shall be eligible for appointment to the Commission for more than two consecutive terms. (1994 C., § 3.57.010; Ord. No. 57733, § 1, 1979.)

3.57.020 Officers.

Members of the Commission shall serve without compensation. Officers consisting of a Chairman, Vice-Chairman, Secretary and Treasurer shall be selected by the Commission from its membership. The term of office of the respective officers shall coincide with the City's fiscal year. (1994 C., § 3.57.020; Ord. No. 57733, § 2, 1979.)

3.57.030 Executive director.

There shall be within the executive branch of the City government the office of Executive Director of the Arts and Humanities Commission. The Mayor shall appoint such executive director in accordance with qualifications and standards established by the Department of Personnel. The executive director shall be responsible for carrying out the functions, duties and purposes of the Commission and shall perform these and such additional duties as assigned by the Mayor. The executive director shall report to the Mayor on all activities and functions of the Commission at the conclusion of each fiscal year in a written annual report, and at other times as requested by the Mayor. (1994 C., § 3.57.030; Ord. No. 57733, § 3, 1979.)

3.57.040 Budget.

The executive director is authorized to employ such personnel within budgetary limitations as provided by appropriations from the convention and tourism tax or by monies received from other means other than general revenues. The executive director may incur such expenses as are approved by the normal budgetary procedures. The salaries of the executive director and his employees shall be commensurate with the duties and responsibilities of the respective positions. (1994 C., § 3.57.040; Ord. No. 57733, § 4, 1979.)

3.57.050 Meetings.

The Commission shall have regularly scheduled meetings no fewer than ten times a year. (1994 C., § 3.57.050; Ord. No. 57733, § 5, 1979.)

3.57.060 Functions and duties.

The Commission is authorized and directed to make, or seek from other sources, an ongoing study of the status and quality of the arts and humanities in the City, including, but not limited to, such areas as landscape architecture, urban design, interior design, graphic arts, fine arts (including paintings and sculpture), performing arts (including music, drama and dance), literature, crafts, folk arts, ethnic arts, photography, communications media, film, modern and classical languages, linguistics, literature, history, jurisprudence, philosophy, archeology, comparative religion, ethics, history and criticism of the arts, aspects of the social sciences having humanistic content or employing humanistic methods, as well as other similar activities which reflect the broad cultural heritage of the St. Louis community and its citizens. (1994 C., § 3.57.060; Ord. No. 57733, § 6(part), 1979.)

3.57.070 Authority to lend support.

The Commission shall further have authority to encourage and promote the arts and humanities in the City by lending its support, whether financial or otherwise, to such artistic and humanistic events, endeavors, and projects as in its judgment will benefit the residents of the City and its environs. (1994 C., § 3.57.070; Ord. No. 57733, § 6(part), 1979.)

3.57.080 Review of applications—Endorsement.

A. The Commission shall further have the authority, and it shall be its duty, to review applications made by agencies, commissions and other subdivisions of the City, or by private groups seeking funds in coordination and conjunction with such City agencies, commissions or subdivisions, for federal, state or local funding in connection with projects involving the arts and humanities. Following such review, the Commission shall have the authority, and it shall be its duty to recommend to the Mayor of the City which, if any, such applications shall be endorsed.

B. Any agency or organization other than those set forth in the preceding paragraph, which desires the endorsement of the Mayor for a similar application, shall be eligible to receive such endorsement in the same manner, and following the same procedures, as have been established for the agencies and organizations enumerated above. (1994 C., § 3.57.080; Ord. No. 57733, § 6(part), 1979.)

3.57.090 Authority to recommend contractual agreements.

The Commission shall further have the authority to recommend contractual agreements with the federal and state governments, and agencies and subdivisions thereof, as well as with nongovernmental agencies, organizations and individuals, in order to carry out the functions of the Commission as expressed herein. (1994 C., § 3.57.090; Ord. No. 57733, § 6(part), 1979.)

3.57.100 Criteria for evaluation.

For the purpose of carrying out the provisions of this chapter, the Commission shall have authority to establish and reduce to writing criteria, rules and regulations for the evaluation of items submitted for its consideration. (1994 C., § 3.57.100; Ord. No. 57733, § 6(part), 1979.)

3.57.110 Assistance to fund-raising efforts.

The Commission shall not conduct an annual fund-raising drive or campaign, but it may participate in, endorse, and otherwise assist private individuals and organizations fund-raising efforts for the arts and humanities. Further, the Commission may assist private organizations to obtain state and federal grants for arts and humanities efforts for the City. (1994 C., § 3.57.110; Ord. No. 57733, § 7, 1979.)

3.57.120 Authority to accept gifts.

The Commission is authorized to accept on behalf of the City gifts, contributions, donations and gratuities to the Commission. Such gifts, contributions, donations and gratuities shall be set aside in a special fund known as the arts and humanities fund and shall be distributed only upon approval of the Board of Estimate and Apportionment. Such gifts, contributions, donations and gratuities shall be used solely for purposes consistent with this chapter and may be disbursed, advanced or loaned upon any terms and conditions consistent with the Charter of the City. (1994 C., § 3.57.120; Ord. No. 57733, § 8, 1979.)

Chapter 3.58

RESERVED

Editor's Note:

Ord. No. 72042, § 3, adopted October 30, 2025, amended the Code by repealing former Ch. 3.58, §§ 3.58.010—3.58.090, which pertained to the Athletic Commission, and derived from the 1948 Code, Ch. 67, §§ 65—72; the

1960 Code, §§ 25.010—25.090; the 1994 Code, §§ 3.58.010—3.58.090; Ord. No. 45288 of 1950; Ord. No. 45950 of 1951; and Ord. No. 46449 of 1953.

Chapter 3.59

AFFORDABLE HOUSING COMMISSION

Sections:

3.59.010	**Collection of local use tax.**
3.59.020	**Establishment and composition of Affordable Housing Commission.**
3.59.030	**Operation of Affordable Housing Commission.**
3.59.040	**Repeal or amendment.**

3.59.010 Collection of local use tax.

Under and by the authority of RSMo 144.757 and 144.761 (2000) the use tax imposed by Ordinance 65121 is hereby repealed, subject to the approval of the voters of the use tax imposed and submitted by the ordinance codified in this section, and there is hereby imposed, subject, however, to the approval of the voters as hereinafter provided, a City use tax at the same rate as the local sales tax, currently at a rate of 2.725 per cent, which includes the capital improvements sales tax and the transportation tax, for the purposes of public health care services, development and preservation of affordable and accessible housing, demolition of derelict buildings, public safety services and neighborhood preservation. Beginning with the fiscal year beginning July 1, 2003 no less than Five Million Dollars ($5,000,000.00) of the fiscal year proceeds of any such tax collected shall be dedicated to providing for the development and preservation of affordable and accessible housing and shall be held by the Comptroller in a special account to be known as the Affordable Housing Trust Fund, administered under the provisions of Ordinance 65132 as amended hereby, and no less than Five Million Dollars ($5,000,000.00) of the fiscal year proceeds of any such tax shall be dedicated to providing public health care services within the City of St. Louis and such proceeds shall be held by the Comptroller in special accounts to be known as the Affordable Housing Trust Fund and the Health Care Trust Fund, respectively, for the purposes of developing and preserving affordable housing in the City of St. Louis and providing public health care services within the City of St. Louis. All interest earned by the funds deposited in such Health Care and Affordable Housing Trust Funds shall be retained in such Funds. If the proceeds are insufficient to provide the above dedicated amounts for affordable housing and health care services, then the proceeds shall be distributed equally between affordable housing and health care. Any amounts of such tax collected or estimated for collection, annually, in excess of Ten Million ($10,000,000.00) and up to Thirteen Million Dollars ($13,000,000.00) shall be dedicated to providing for the demolition of derelict buildings and shall be held by the Comptroller in a special account to be known as the Use Tax Demolition Fund unless and until appropriated by the Board of Aldermen, which appropriation shall be only for the purpose of demolishing derelict buildings, and all interest earned by the funds deposited in the Use Tax Demolition Fund shall be retained in such Fund unless and until appropriated by the Board of Aldermen in accordance with applicable law, for expenditure in accordance with such appropriation; any amount of such tax collected or estimated for collection, annually, in excess of Thirteen Million Dollars ($13,000,000.00) shall be dedicated for the demolition of derelict buildings, public safety, neighborhood preservation, development and preservation of affordable and accessible housing and public health care services, and shall be held by the Comptroller in a special account to be known as the Use Tax Excess Trust Fund. All interest earned by the funds deposited in such Use Tax Trust Excess Fund shall be retained in such Trust Fund unless and until appropriated by the Board of Aldermen in accordance with applicable law, for expenditure in accordance with such appropriation. All funds in the Use Tax Excess Trust Fund may be appropriated by the Board of Aldermen for the purposes of providing for the demolition of derelict buildings, public safety, neighborhood preservation, development and preservation of affordable and accessible housing and public health care services, as the Board of Aldermen may hereafter determine, and the appropriation of such collections by the Board of Aldermen for a particular purpose shall evidence such Board's determination of such purpose for the demolition of derelict buildings, public safety, neighborhood preservation, development and preservation of affordable housing and public health care services. Any funds that remain unused or unallocated in the Affordable Housing Trust Fund at the end of the City's fiscal year (including interest, other earned income or repayments of loans) shall remain deposited in and for the use of the Affordable Housing Commission in the next fiscal year. Any

funds that remain unallocated in the other said Trust Funds at the end of the City's fiscal year (including interest, other earned income or repayments of loans) shall remain deposited in said respective Fund where originally deposited for use of Fund purposes in the next fiscal year. (1994 C., § 3.59.010; Ord. No. 65609, § 2, 2002; Ord. No. 65132, § 1, 2000.)

3.59.020 Establishment and composition of Affordable Housing Commission.

A. *Establishment.* There shall be and is hereby established a commission consisting of eleven (11) members to be known as the "Affordable Housing Commission."

B. *Appointment.* The members of the Affordable Housing Commission shall be appointed by the Mayor and approved by the Board of Aldermen. Such appointment shall be made so as to provide for a total representation of the residents of this City as required by the provisions of Ordinance 55771.

C. *Qualifications.* Each member of the Affordable Housing Commission shall be a resident of the City of St. Louis and shall not be delinquent on any tax obligation to the City of St. Louis. Of the eleven (11) members of the Commission, the Mayor shall appoint (1) one member from the financial or banking industry, (2) one member from the St. Louis Labor Council or other organized labor union or organization, (3) one member from the Home Builders Association of Greater St. Louis or other organization dedicated to residential home development and construction, (4) one member who shall be a licensed realtor, (5) one member who is a tenant in subsidized or rent assisted housing, (6) one member from an organization that advocates on behalf of disabled persons, (7) one member from the health care profession, (8) one member from organizations that promote, preserve or advocate on issues relating to affordable housing, and (9) three members from the community at large. Each member of the Affordable Housing Commission shall be chosen for their demonstrated interest in preserving and/or promoting the development of affordable and accessible housing and the stabilization of neighborhoods in the City of St. Louis.

D. *Term.* Of the eleven (11) members of the Affordable Housing Commission initially appointed by the Mayor, four members shall be appointed for three year terms, four members shall be appointed for two-year terms, and three members shall be appointed for a one year term. All members of the Affordable Housing Commission thereafter appointed shall be appointed for full terms of three years. No person, however, shall be eligible for appointment to the Affordable Housing Commission for more than two consecutive terms. Each term of office for the members of the Affordable Housing Commission shall expire on the last day of the fiscal year of the City of St. Louis.

E. *Compensation.* Members of the Affordable Housing Commission shall serve without compensation.

F. *Quorum.* For the purposes of conducting any official business, six members of the Affordable Housing Commission shall constitute a quorum.

G. *Election of Officers.* The members of the Affordable Housing Commission shall elect by a majority vote of the total members of the Affordable Housing Commission, officers consisting of a Chairman, Vice-Chairman, Secretary and Treasurer.

H. *Compliance with Open Meetings Law.* All meetings of the Affordable Housing Commission shall be held and conducted in accordance with the Missouri Sunshine Law, RSMo 610.01 as amended. All records of the Commission shall be held and subject to public disclosure in accordance with the Missouri Sunshine Law RSMo 610.010 as amended. (1994 C., § 3.59.020; Ord. No. 65132, § 2, 2000.)

3.59.030 Operation of Affordable Housing Commission.

A. *Appointment of Executive Director.* There shall be within the executive branch of the City government the office of Executive Director of the Affordable Housing Commission. The Mayor shall appoint said Executive Director in accordance with the qualifications and standards established by the Department of Personnel subject to approval of the Board of Aldermen. The Executive Director shall be responsible for the carrying out of the functions, duties and purposes of the Affordable Housing Commission and shall perform these and such additional duties as assigned by the Mayor.

B. *Budget.* The Executive Director is authorized to employ such personnel within the budgetary limitations as provided by the imposition and collection of the local use tax established and imposed by this chapter, provided that the salaries shall not exceed ten (10) percent of the departmental budget. The Executive Director may incur such expenses as are approved by the normal budgetary procedures. The salaries of the

Executive Director and any administrative employees shall be commensurate with the duties and responsibilities of the respective positions.

C. *Annual Report.* The Executive Director shall prepare and issue at the conclusion of the City's fiscal year a report setting forth the state of affordable housing in the City, describing the activities and functions of the Affordable Housing Commission, summarizing the developments, programs, and services funded by the Affordable Housing Commission, and setting forth the expenditures made by the Affordable Housing Commission from the Affordable Housing Trust Fund. The annual report shall also include an assessment evaluating the performance of various departments of the City of St. Louis and other public agencies relating to the development and preservation of affordable and accessible housing in the City of St. Louis.

D. *Powers and Duties.*

1. *Study and Recommendations.* The Affordable Housing Commission shall make (or seek from other sources) an ongoing study of the status and quality of affordable and accessible housing in the City of St. Louis and shall make annual recommendation regarding actions to be taken by the City of St. Louis to improve the quantity and quality of affordable and accessible housing in the City of St. Louis.

2. *Programs.* The Affordable Housing Commission shall establish and provide funding for a development loan program and a grant program. In addition, the Commission is authorized to create, sponsor, fund, and promote such other and further programs and services designed to develop and preserve affordable and accessible housing in the City of St. Louis, including, but not limited to, education, consulting and technical support.

a. *Loan Programs.* The Commission is authorized to make low interest and no-interest loans to housing developers for the rehabilitation, modification, construction and preservation of affordable and accessible housing in the City of St. Louis on projects approved by the Community Development Agency, provided that all loans made hereunder shall be subject to land use restriction agreements that the units will be used for affordable and/or accessible housing for their entire useful economic life and all loans for new construction shall incorporate "universal design" standards to promote affordable and accessible housing for the disabled. Each project eligible for funding shall be sponsored by a housing or neighborhood organization operating in the immediate project area. The loan proceeds shall be disbursed by the Affordable Housing Commission on approved eligible construction costs actually incurred and not for administrative project costs such as developer overhead, development fees or other expenses.

b. *Grant Programs.* The Affordable Housing Commission is authorized to make forgivable loans and grants to housing developers, property owners and tenants to promote the development and preservation of affordable and accessible housing in the City of St. Louis, provided that all grants made hereunder shall be administered in a manner to promote neighborhood stabilization and shall contain, where appropriate, conditions such as reasonable restrictions on and provisions for the oversight of tenants and landlords. Projects eligible for grants include projects such as (i) modifications to accommodate people with disabilities, (ii) lead-based paint abatement, (iii) emergency home repair assistance, (iv) temporary emergency services to prevent homelessness (including mortgage assistance, rent assistance, and utility assistance), (v) emergency and transitional housing, (vi) security deposit, utility deposit, down payment, and closing costs assistance. Each project eligible for funding shall be sponsored by a housing or neighborhood organization operating in the immediate project area. The grant proceeds shall be disbursed by the Affordable Housing Commission on approved eligible construction costs actually incurred and not for administrative project costs such as development overhead, development fees or other expenses.

E. *Support Services.* All loans and grants made hereunder shall include provisions for support services where appropriate to promote the development and preservation of affordable and accessible housing in the City of St. Louis.

F. *Application Review.* The Affordable Housing Commission shall have the authority and duty to review applications made by agencies, commissions and other departments of the City of St. Louis, except said agencies, commissions and other departments of the City of St. Louis cannot apply to the Commission for any such affordable and accessible housing funds except to expand services or projects or provide new services or projects, or by private groups seeking funds in coordination and conjunction with such City agencies, commissions or departments, for federal, state and

local funding in connection with projects designed to promote the preservation and development of affordable and accessible housing in the City of St. Louis.

G. *Review Standards.* For the purposes of carrying out the provisions of this chapter, the Affordable Housing Commission shall have the authority to establish written standards, rules and regulations for funds from the Affordable Housing Trust Fund shall be made to and for the benefit of households earning no more than 80% of the St. Louis area's median income and provided that at least 40% of gross annual expenditure of funds from the Affordable Housing Trust Fund shall be made to and for the benefit of households earning 20% of the St. Louis area's median income or below.

H. *Funding Restrictions and Preferences.*

1. *Health and Safety.* The recipient of any expenditure of funds from the Affordable Housing Trust Fund shall comply with all applicable federal, state and local laws relating to health and safety, including, but not limited to, housing codes, occupation safety codes, product codes and standards, and consumer safety.

2. *Anti-Discrimination.* The recipient of any expenditure of funds from the Affordable Housing Trust Fund shall comply with all applicable federal, state and local law relating to discrimination on the basis of race, national origin, sex, sexual orientation, age or other prohibited classifications. The Affordable Housing Commission may give preference to funding projects that require the use of thirty percent (30%) or more participation of minority business enterprises or disadvantaged business enterprises or that promote the employment opportunities of persons with low income or persons with disabilities.

3. *Environmental Impact.* The recipient of any expenditure of any funds from the Affordable Housing Trust Fund shall comply with all applicable federal, state and local laws relating to the environment. The Affordable Housing Commission may give preference to funding projects that exceed existing environmental requirements and standards or that incorporate energy efficient designs and materials.

4. *Employment.* The recipient of any expenditure of any funds from the Affordable Housing Trust Fund shall comply with all applicable federal, state and local law relating to employment, including, but not limited to, minimum wage requirements, occupational safety, accident reporting requirements, etc. The Affordable Housing Commission may give preference to funding projects that create employment opportunities for residents of low income neighborhoods and public housing complexes in the City of St. Louis and may give preference to funding projects that pay a living wage of at least $8.75 per hour plus benefits, indexed to inflation, to all persons employed on said project.

I. *Inter-Departmental Coordination.* The Executive Director of the Affordable Housing Commission and the Director of the Community Development Agency shall coordinate activities under this chapter to ensure that there is no program duplication between the Affordable Housing Commission and the Community Development Agency. (1994 C., § 3.59.030; Ord. No. 65673, § 1, 2002; Ord. No. 65132, § 3, 2000.)

3.59.040 Repeal or amendment.

A. *Repeal or Amendment of Local Sales Tax.* If the local sales tax is repealed or the rate thereof is reduced or raised by voter approval after the passage of the ordinance codified in this chapter, the local use tax shall be deemed to be repealed, reduced or raised by the same action repealing, reducing or raising the local sales tax.

B. *Repeal or Amendment of Local Use Tax.* The local use tax established and imposed by this chapter shall not be repealed or amended unless such amendment or repeal is submitted to and approved by a majority of the qualified voters of the City of St. Louis. (1994 C., § 3.59.040; Ord. No. 65132, § 4, 2000.)

Chapter 3.60

CHARITY SOLICITATIONS COMMISSION

Prior history: Ords. 47130, 48748, 49620; 1948 C. Ch. 61 § 1

For further powers and duties, see Ch. 8.84.

Charter:

Art. IV § 26 Board of aldermen may not appropriate money for charitable purposes, except such as shall be subject to the administration or supervision of the city.

Art I § 1(32) Authority of city to maintain charitable institutions.

City Counselor Ops.: 9369, 9934

Sections:

3.60.010	**Membership—Terms.**
3.60.020	**Organization—Powers and duties generally.**
3.60.030	**Executive Secretary.**

3.60.010 Membership—Terms.

There is for the administration of Chapter 8.84 a Charity Solicitations Commission which shall be com-

posed of ten members who shall serve without compensation. The Commission shall consist of a member of the Police Department who shall be designated by the Chief of Police, the Director of Welfare, and eight additional members to be appointed by the Mayor, one upon the recommendation of the Better Business Bureau of St. Louis, one upon the recommendation of the Chamber of Commerce, one upon the recommendation of the Associated Retailers of St. Louis, one upon the recommendation of the St. Louis Labor Council, one upon the recommendation of the St. Louis Central Executive Committee of the American Legion, one upon the recommendation of the Greater St. Louis Council of Veterans of Foreign Wars, one upon the recommendation of the St. Louis Disabled Veterans, and one upon the recommendation of the AMVETS. The Mayor is not required to appoint the candidates so recommended. No one shall be appointed as a member of the Commission who is the organizer or local head of any charitable, educational or philanthropic agency. The term of office shall be for four years and until a successor qualifies. For the initial appointments, two members shall serve for a term of one year, two members shall serve for a term of two years, three members shall serve for a term of three years and three members shall serve for a term of four years. (1960 C., § 745.010; 1994 C., § 3.60.010; Ord. No. 52194, § 1, 1963.)

City Counselor Ops.: 9537

3.60.020 Organization—Powers and duties generally.

The Commission shall organize by electing its own officers, determine its time and place of meetings and shall adopt other regulations as in its own judgment necessary for the successful administration of the terms and conditions of Chapter 8.84. Five of the members shall constitute a quorum. All actions of the Commission may be by a simple majority of the members present except as otherwise provided. The Commission shall have power to issue permits and revoke permits as provided in Chapter 8.84. The Commission shall have the power to summons witnesses, take testimony, direct investigations, conduct hearings and do and perform all other acts which may be necessary and proper within the scope of its duties and functions. (1960 C., § 745.020; 1994 C., § 3.60.020; Ord. No. 52194, § 1, 1963.)

City Counselor Ops.: 9537

3.60.030 Executive Secretary.

There shall be appointed by the Director of Welfare and approved by six or more members of the Commission an Executive Secretary to the Commission who shall be responsible to the Commission for performing duties as may be assigned to him by the Commission. He shall have the power, with the approval of the Director of Welfare, to appoint all employees necessary for carrying out the responsibility delegated in this chapter and Chapter 8.84 to the Commission. With the approval of the Commission, he shall have the power to summon witnesses, direct investigations and do all things necessary to effectuate the enforcement of Chapter 8.84. (1960 C., § 745.030; 1994 C., § 3.60.030; Ord. No. 52194, § 1, 1963.)

Chapter 3.62

CONVENTION CENTER AND AUDITORIUM COMMISSION

Editor's Note:

Sections 3.62.020, 3.62.025, 3.62.030, 3.62.040, 3.62.050, 3.62.060 and 3.62.070 have been deleted because of Ordinance 62388 which repealed Section 6 of Ordinance 40145, Sections 5 and 7 of Ordinance 56938, Sections 2, 3, 4, 5, 6 and 7 of Ordinance 57483, and Ordinance 58861.

Sections:

3.62.010 Alfonso J. Cervantes Convention and Exhibition Center.

3.62.010 Alfonso J. Cervantes Convention and Exhibition Center.

The convention facility located in the block of the City bounded by Seventh Street, Ninth Street, Delmar Avenue and Cole Street constructed under the authority of a bond issue proposition submitted to the voters under Ordinance 56562 and approved at the special election held on the proposition on November 7, 1972, shall be known and designated as the "Alfonso J. Cervantes Convention and Exhibition Center." (1994 C., § 3.62.010; Ord. No. 57483, § 1, 1978; Ord. No. 56938, § 1, 1975.)

Editor's Note:

Reference to Ordinance 56562 should be to 56262.

Chapter 3.64

RESERVED

Editor's Note:

Ord. No. 72042, § 4, adopted October 30, 2025, amended the Code by repealing former Ch. 3.64, §§ 3.64.010—3.64.030, which pertained to the Convention and Tourism Bureau, and derived from the 1960 Code, §§ 33.010, 33.020; the 1994 Code, §§ 3.64.010—3.64.030; Ord. No. 54944 of 1968; and Ord. No. 61969 of 1990.

Chapter 3.66

RESERVED

Editor's Note:

Ord. No. 72042, § 5, adopted October 30, 2025, amended the Code by repealing former Ch. 3.66, §§ 3.66.010—3.66.100, which pertained to the Commission on Crime and Law Enforcement, and derived from the 1960 Code, §§ 35.010—35.100; the 1994 Code, §§ 3.66.010—3.66.100; and Ord. No. 55455 of 1969.

Chapter 3.67

RESERVED

Editor's Note:

Ord. No. 72042, § 6, adopted October 30, 2025, amended the Code by repealing former Ch. 3.67, §§ 3.67.010—3.67.040, which pertained to the Metropolitan Corrections Commission, and derived from the 1994 Code, §§ 3.67.010—3.67.040; and Ord. No. 57407 of 1977.

Chapter 3.69

CRIMINAL JUSTICE COORDINATING COUNCIL

Sections:

3.69.010	**Creation—Intergovernmental agreement.**
3.69.020	**Authority to enter agreement—Composition—Powers and duties.**
3.69.030	**Vacancies.**
3.69.040	**Executive director—Staff.**
3.69.050	**Budget.**
3.69.060	**Information sharing agreement.**
3.69.070	**Termination.**
3.69.080	**Dissolution—Transfer of assets.**
3.69.090	**Constitutionality.**
3.69.100	**Reports.**

3.69.010 Creation—Intergovernmental agreement.

The Criminal Justice Coordinating Council ("CJCC") shall hereby be established through an intergovernmental agreement, by and between the City, the Sheriff, the Twenty-Second Judicial Circuit Court, the Circuit Attorney, the Missouri State Public Defender and the Director of the Missouri Department of Corrections pursuant to the authority and requirements set forth under RSMo 70.210 through 70.325, as an independent advisory council, for the purpose of ensuring the fair administration of criminal and juvenile justice by increasing effective communication, collaboration and planning; and, to improve the criminal and juvenile justice systems' operation through effective data collection, sharing and analysis crosscutting the local criminal and public health systems. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.020 Authority to enter agreement—Composition—Powers and duties.

The Mayor, on behalf of the City of St. Louis, is hereby authorized to enter into and execute the intergovernmental cooperative agreement establishing the CJCC and the agreement shall contain such terms and conditions as may be approved by the City Counselor and shall further include, but not be limited to, the following:

A. Organization and Composition. The intergovernmental cooperative agreement may provide that the CJCC be organized as a body corporate and politic, as provided for under RSMo 70.210 through 70.325, and shall be composed of nine (9) ex-officio voting members, five (5) appointed voting members, two (2) appointed non-voting members and four (4) ex-officio non-voting members, as follows:

1. *Ex-Officio Voting Members.* The Council shall consist of nine (9) ex-officio voting members composed of the Circuit Attorney, the Twenty-Second Judicial Circuit Court Administrator, the Police Commissioner, the Administrative Judge of the Municipal Division of the Twenty-Second Judicial Circuit Court, the Clerk of the Municipal Division of the Twenty-Second Judicial Circuit Court, the Sheriff, the District Public Defender, the Corrections Commissioner of the City of St. Louis, and the Probation and Parole Administrator for the Eastern Region of the State of Missouri. The terms of the ex-officio members shall correspond to their respective official terms.

2. *Appointed Voting Members.*

a. The Presiding Judge of the Twenty-Second Judicial Circuit Court shall appoint one (1) judge of the Twenty-Second Judicial Circuit Court to serve as a member on the CJCC. The appointed judge shall be a voting member and shall serve at the pleasure of the Presiding Judge.

b. The appointed judge of the Twenty-Second Judicial Circuit Court shall, at the recommendation of the Executive Director of the CJCC, appoint two (2) voting members who represent community based stakeholder agencies whose mission aligns with the CJCC

priorities. The criteria to be used by the Executive Director's recommendation of these two positions shall be set forth in the intergovernmental cooperative agreement. The initial term for these appointed members shall initially be two years for one member and four years for the other. Thereafter, members appointed to these positions shall have terms of four (4) years or until his or her successor is duly appointed and qualified.

c. The Circuit Attorney shall appoint one (1) attorney from the Circuit Attorney's Office to serve as a member on the CJCC.

d. The Sheriff's Office shall appoint one (1) deputy from the Sheriff's Office to serve on the CJCC.

3. *Appointed Non-Voting Members.* The Circuit Attorney shall appoint one (1) non-voting member who has a background in providing prosecution based crime victim services. The Police Commissioner shall appoint one (1) non-voting member who has a background in providing law enforcement based crime victim services. The terms for these appointed members shall initially be two years for the member with the law enforcement crime victim services background and four years for the member with the prosecution based crime victim services background. Thereafter, members appointed to these positions shall have terms of four (4) years or until his or her successor is duly appointed and qualified.

4. *Ex-Officio Non-Voting Members.* The Mayor, the President of the Board of Aldermen, the City Counselor and the Director of Public Safety shall serve as ex-officio non-voting members. The terms of the ex-officio non-voting members shall correspond to their respective official terms.

B. Powers and Duties. The intergovernmental cooperative agreement shall set forth the powers of the CJCC to ensure that the CJCC has all powers reasonably necessary to function under the intergovernmental cooperative agreement, including, but not be limited to, the following:

1. To sue and be sued in its corporate name;

2. To take and hold any property, real or personal, in fee simple or otherwise;

3. To sell, lease, lend or otherwise transfer any property or interest in property owned by it;

4. To make contracts;

5. To have and use a corporate seal;

6. To apply for grants only if such application(s) would not compete with a CJCC member's application(s);

7. To accept, receive and expend funds, grants, and services from the federal, State, or City government or their agencies;

8. To make recommendations concerning the coordination of the activities and the mobilization of the resources of the member agencies in improving public safety in, and the criminal justice system of, the City of St. Louis;

9. To cooperate with and support the member agencies in carrying out the purposes of the CJCC;

10. To define and analyze issues and procedures in the criminal justice system, identify alternative solutions, and make recommendations for improvements and changes in the programs of the criminal justice system;

11. To receive information from, and give assistance to, other City of St. Louis agencies concerned with, or affected by, issues of public safety and the criminal justice system;

12. To make recommendations regarding systematic operational and infrastructural matters as are believed necessary to improve public safety in the City of St. Louis;

13. To advise and work collaboratively with the criminal justice agencies in the City in developing justice planning documents and allocating grant funds; and

14. To establish measurable goals and objectives for reform initiatives.

C. The CJCC shall not have the power to abolish the office of any elected official.

D. By-Laws, Quorum and Officers. The intergovernmental cooperative agreement shall provide that the CJCC shall select officers and adopt by-laws for the conduct of its business, consistent with any applicable law, including, but not limited to, RSMo Ch. 610 and RSMo 105.452 (2000), as amended. The by-laws shall be filed with the Register of the City of St. Louis and shall include such topics, but not be limited to: quorum, minutes, committees, records retention and disqualification from voting. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.030 Vacancies.

In the event of a death, incapacity, resignation or removal of any appointed member of the CJCC prior to the expiration of his or her term, the vacancy shall be

filled in same manner and under the same provisions governing the original appointment, but the length of the term shall only be for the remaining portion of the original term. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.040 Executive director—Staff.

The intergovernmental cooperative agreement shall provide that the Mayor of the City of St. Louis shall appoint, subject to appropriation, an Executive Director and staff who shall assist the CJCC, under the direction of its Chair, in the performance of its functions. The City shall, subject to appropriation, provide all necessary supplies, equipment, and resources to assist the CJCC in the performance of its functions. The Executive Director and the staff shall be members of the City's classified service plan. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.050 Budget.

The intergovernmental cooperation agreement shall provide that the CJCC shall prepare and submit its annual budget to the City pursuant to the provisions of the City Charter. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.060 Information sharing agreement.

The intergovernmental cooperation agreement shall provide that the CCJC maintain an intergovernmental information sharing agreement ("IISA") among the City of St. Louis, the Sheriff, the Twenty-Second Judicial Circuit Court, the Circuit Attorney, the Missouri State Public Defender and the Director of the Missouri Department of Corrections, and other public and private entities to implement and govern the sharing of information among them in a lawful, secure, effective, efficient, simple, and practical manner. The CCJC will have the authority to negotiate, enter into, administer, perform, modify, amend, enforce, and terminate the IISA. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.070 Termination.

The intergovernmental cooperation agreement shall provide that the CJCC shall terminate or dissolve at five (5) years from the effective date of the ordinance codified in this chapter unless two-thirds of its voting membership determines that it shall remain in effect. The intergovernmental cooperation agreement shall also provide for at least one other method of termination and/or for any member of the agreement to withdraw its participation under the agreement. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.080 Dissolution—Transfer of assets.

The intergovernmental cooperation agreement shall provide that, in the event of the dissolution or termination of the CJCC, that all assets remaining after liabilities or obligations of the CJCC have been paid, satisfactorily discharged or adequate provisions made therefor, shall be distributed to the City of St. Louis. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.090 Constitutionality.

The intergovernmental cooperation agreement shall provide that if any one or more of the provisions thereof be declared unconstitutional or contrary to law, the validity of the remainder of the agreement shall not be affected thereby, but shall remain in full force and effect. (Ord. No. 71012, § 1, 8-26-2019.)

3.69.100 Reports.

The CJCC shall report, on an annual basis, on the status and progress of the goals and objectives identified by the CJCC and its Committees to the membership of the CJCC, the Mayor, and the Board of Alderman. The report shall be submitted to the Mayor and the Board of Alderman by September 30 after the end of each fiscal year. (Ord. No. 71012, § 1, 8-26-2019.)

Chapter 3.70

RESERVED

Editor's Note:

Ord. No. 72042, § 7, adopted October 30, 2025, amended the Code by repealing former Ch. 3.70, §§ 3.70.010—3.70.050, which pertained to the Municipal Bridge Commission, and derived from the 1948 Code, Ch. 19, §§ 2—6; the 1960 Code, §§ 591.010—591.050; and the 1994 Code, §§ 3.70.010—3.70.050.

Chapter 3.72

CAMPAIGN CONTRIBUTION LIMITS

Sections:

3.72.010	**Findings.**
3.72.020	**Definitions.**
3.72.030	**Campaign contribution limitation amounts.**
3.72.040	**Repealed.**
3.72.050	**Determination of maximum contribution.**
3.72.060	**Contributions from persons fourteen and under.**

3.72.070 Municipal Officials and Officers Ethics Commission

3.72.080 Staff and records.

3.72.090 Jurisdiction, powers, duties, and procedures of the Municipal Officials and Officers Ethics Commission.

3.72.100 Violations.

3.72.010 Findings.

The Board of Aldermen for the City of St. Louis finds and declares as follows:

• That preserving integrity and openness in the political process is a matter of the highest public interest.

• It is the policy of the City to promote and encourage broad-based citizen involvement in the financing of election campaigns.

• That regulation of campaign contributions is required because of the public perception that the interests of large contributors may supersede the interests of the general public.

• That the State of Missouri does not at present specify a maximum limit on campaign contributions. (1994 C., § 3.72.010; Ord. No. 70781, § 1, 6-18-2018; Ord. No. 70357, § 1, 10-25-2016)

3.72.020 Definitions.

With the following exceptions, terms shall be defined as in the Missouri Campaign Finance Disclosure Law, RSMo Ch. 130:

A. "Base Amount" means monetary campaign contribution limitation amounts prescribed in Section 3.72.030.

B. "City Election" means any primary, general, or special election held to elect an individual to the following offices of St. Louis, Missouri: Mayor, President of the Board of Aldermen, Comptroller, Recorder of Deeds, Sheriff, Collector of Revenue, License Collector, Treasurer, member of the Board of Aldermen, Circuit Attorney, or member of the St. Louis Board of Education, or to retain or recall such official.

C. "Contribution Limit" means the monetary campaign contribution limitation amounts set forth in Section 3.72.030 as subsequently adjusted pursuant to Section 3.72.040. (1994 C., § 3.72.020; Ord. No. 70357, § 2, 10-25-2016)

3.72.030 Campaign contribution limitation amounts.

A. No person, entity, or committee, other than the candidate, shall make any contribution to a candidate committee, which will cause the total amount contributed by such person, entity, or committee to exceed the contribution limit for that office.

B. No candidate, committee, entity, or person acting on behalf of a candidate or committee shall solicit or accept from any person, entity, or committee any contribution, which will cause the total amount contributed by such person in a City Election to exceed the contribution limit.

C. The contribution limits amount for each City Election, as defined in Section 3.72.020.B are as follows:

a. To elect an individual to the office of Mayor, two thousand six hundred dollars ($2,600.00).

b. To elect an individual to the office of President of the Board of Aldermen, two thousand six hundred dollars ($2,600.00).

c. To elect an individual to the office of Comptroller, two thousand six hundred dollars ($2,600.00).

d. To elect an individual to the office of Treasurer, two thousand six hundred dollars ($2,600.00).

e. To elect an individual to the office of Collector of Revenue, two thousand six hundred dollars ($2,600.00).

f. To elect an individual to the office of License Collector, two thousand six hundred dollars ($2,600.00).

g. To elect an individual to the office of Sheriff, two thousand six hundred dollars ($2,600.00).

h. To elect an individual to the office of Recorder of Deeds, two thousand six hundred dollars ($2,600.00).

i. To elect an individual to the office of member of the Board of Aldermen, two thousand six hundred dollars ($2,600.00).

j. To elect an individual to the office of member of the St. Louis Board of Education, two thousand six hundred dollars ($2,600.00).

k. To elect an individual to the office of Circuit Attorney, two thousand six hundred dollars ($2,600.00). (1994 C., § 3.72.030; Ord. No. 71922, § 1, 11-15-2024; Ord. No. 70781, § 2, 6-18-2018; Ord. No. 70357, § 3, 10-25-2016)

3.72.040 Repealed.

Editor's Note:

Ord. No. 70781, § 3, adopted June 18, 2018, repealed § 3.72.040, which pertained to adjustments to contribution limits and derived from Ord. No. 70357, § 4, 10-25-2016.

3.72.050 Determination of maximum contribution.

A. For purposes of computing the contribution limits for a City election, the aggregate amount of contributions made by or accepted from any person for such City election shall be computed by adding all contributions made by or accepted from, as the case may be, such person during the following period:

General Election Period: Beginning at 12:00 a.m. on the day after the last general or special election and ending at 11:59 p.m. on the day of the immediately following general or special election.

B. If a debt service committee is formed, contributions may be made to and received by such committee as long as the aggregate contribution received from or made by a person does not exceed the limitation amounts for the aggregating period in which the debt was incurred.

C. If a candidate changes the office sought during the primary election period, the limitation amounts of the new office sought shall apply to all contributions made to and received by such individual during the election period. All contributions over the limitations of the new office sought shall be returned to the contributor within ten (10) days of the change in the office sought.

D. Contributions made or received prior to the effective date of this chapter shall not be considered when determining whether or not the limitation amounts have been reached. (1994 C., § 3.72.050; Ord. No. 70357, § 5, 10-25-2016)

3.72.060 Contributions from persons fourteen and under.

Contributions from persons fourteen years (14) of age or less shall be considered made by the parents or guardians of such person and shall be attributed toward any limitation amounts prescribed herein. Where the contributor is fourteen (14) years of age or less and has two custodial parents or guardians, fifty percent (50%) of the contribution shall be attributed to each parent or guardian. Where such contributor has one custodial parent or guardian, all such contributions shall be attributed to the custodial parent or guardian. (1994 C., § 3.72.060; Ord. No. 70357, § 6, 10-25-2016)

3.72.070 Municipal Officials and Officers Ethics Commission

A. There is hereby created a Municipal Officials and Officers Ethics Commission comprised of five (5) members. The Commission shall be composed of the following members: Two (2) members shall be appointed by the Mayor. One (1) member each shall be appointed by (i) the President of the Board of Aldermen, (ii) the Comptroller, and (iii) the Chairman of the Legislation Committee of the Board of Aldermen. One member shall be named by the Mayor as chair. No members of the Commission shall hold any other public office or be a candidate for any public office, or be an elected or appointed member of any local, state, or national committee of any political party.

B. No member of the Municipal Officials and Officers Ethics Commission shall, during the member's service on the Commission or within one year thereafter: Permit the member's name to be used, or make contributions, in support of or in opposition to any candidate for City elected office or any City proposition; or participate in any way in any election campaign for any candidate for City elected office or any City proposition; except that a member shall retain the right to register and vote in any election, to express the member's opinion privately on political subjects or candidates and to participate in the activities of a civic, community, social, labor or professional organization.

C. The Mayor's two appointees shall each serve a first term ending on January 31, 2019. Subsequent terms of office shall be for a period of four years, ending January 31. The three remaining appointees shall serve a first term ending January 31, 2022. Subsequent terms of office for these appointees shall also be for a period of four years, ending January 31.

D. All appointees shall be confirmed by a majority vote of the Board of Aldermen. (1994 C., § 3.72.070; Ord. No. 70357, § 7, 10-25-2016)

3.72.080 Staff and records.

Ethics Compliance Officer. The Commission shall appoint an Ethics Compliance Officer to perform the following duties:

- Provide the Municipal Officials Ethics Commission with an audited report of campaign finance disclosures, pursuant to Section 3.72.090.

• Receive and promptly transmit to the members of the Commission complaints and responses filed with the Commission;

• Investigate, marshal, and present to the Commission the evidence bearing upon a complaint;

• Prepare draft advisory opinions for consideration of the Commission about the requirements imposed by the ethics laws;

• Assist when requested in the training and education of officials and employees with respect to their ethical responsibilities;

• Recommend acceptance or rejection of complaint made to the Commission;

• Request additional information from complainant as needed;

• Render informal, nonbinding opinions upon request; and

• Serve as an advisor on issues of ethics to the Mayor and Council Members.

Counsel. The City Counselor shall serve as administrator of the provisions of this chapter. The City Counselor or an assistant City Counselor will serve as legal counsel to the Commission. The City Counselor may appoint special counsel under appropriate circumstances. In the absence of the appointment of an Ethics Compliance Officer, the City Counselor will serve in that role, with all powers and duties of the position, until a permanent Ethics Compliance Officer is named.

Access to staff. The Commission and Ethics Compliance Officer may call upon the City Counselor or other appropriate official or employee to assist in an investigation.

Assistance. The Commission may call upon the City Counselor, the Board of Election Commissioners of the City of St. Louis, or any other appropriate public officer to assist them in their investigation. Contingent on the availability of funds, the Commission may utilize outside counsel or staff if it is reasonable and necessary to properly complete its work.

Certain records closed. When permitted by the Missouri law applicable to open meetings and records, and in recognition of the following factors, meetings and records of the Commission in connection with an investigation or advisory opinion shall be closed to the public: The information to be presented or to be discussed at the meeting or the records may involve persons other than the municipal official or officer who are not under investigation, and disclosure of such information may be harmful to such persons.

Review of closed records. Information closed under this provision shall be reviewed annually to determine if it may be opened to public inspection.

Final report an open record. If, after an investigation, the Commission makes a determination that a violation of the Charter or ordinance has occurred, a final report on the investigation shall always be an open record.

Removal of members. Commission members may be removed for cause, for ceasing to hold the qualifications to serve, refusal to serve, or malfeasance in office. Removal shall be by quo warranto. (1994 C., § 3.72.080; Ord. No. 70357, § 8, 10-25-2016)

3.72.090 Jurisdiction, powers, duties, and procedures of the Municipal Officials and Officers Ethics Commission.

A. *Jurisdiction.* The Commission shall have jurisdiction to investigate and address questions concerning alleged violations of: campaign finance regulations, ethics and financial disclosure regulations, regulations concerning conflicts of interest, and other local regulations pertaining to elected and appointed officials.

B. *Personnel action.* The Commission shall have no jurisdiction to administer employee discipline or to take any job action, including the declaration of the forfeiture of a person's employment or office.

C. *Time limitations.* The Commission shall not commence any investigation or other action to consider any alleged violation that occurred more than one year prior to the date of the complaint.

D. *Powers.* The Commission shall have the power:

• To establish, amend, and rescind rules and procedures governing its own internal organization and operations, consistent with ordinances pertaining to municipal ethics, disclosure, conflict of interest, and municipal campaign finance;

• To request from the Budget Director and City Counselor the assignment of staff necessary to carry out its duties;

• To review, index, maintain on file, and dispose of sworn complaints;

• To make notifications and conduct investigations, both on referral or complaint;

• To compel the production of sworn testimony, witnesses and evidence;

• To recommend cases for consideration of prosecution or other action by appropriate authorities and agencies;

• To request the City Counselor to provide an independent counsel to advise and represent the board, when appropriate or necessary to avoid a conflict of interest;

• To provide assistance in the training and education of City officials and employees with respect to their ethical responsibilities;

• To exercise such other powers and duties as may be established by ordinance.

E. *Authority.* The Commission may render advisory opinions. The Commission may authorize the Ethics Compliance Officer to issue advisory opinions in the name of the Commission under rules established by the Commission.

F. *Requesting advisory opinions.* Any official may request in writing an opinion from the Commission on a matter that may impact the official. The Commission shall timely consider all requests and upon the concurrence of at least three members of the Commission and without the request of any third party, the Commission may issue advisory opinions on any matter within its jurisdiction.

G. *Procedures:*

1. *Review of Disclosure Reports.* Within seven (7) business days of the filing of each full disclosure report required under RSMo 130.041 and 130.046 by any committee supporting a candidate in a City Election, the Board of Election Commissioners of the City of St. Louis shall obtain a copy of each Campaign Disclosure Report filed by a candidate or committee pertaining to a City election and forward them to the Ethics Compliance Officer. Within fourteen (14) business days after each deadline for filing a full disclosure report required under RSMo 130.041 and 130.046 by any committee supporting a candidate in a City Election, the Ethics Compliance Officer shall provide the Municipal Officials Ethics Commission with an audited report of campaign finance disclosures, making note of potential violations. The Municipal Officials Ethics Commission shall review the applicable campaign finance disclosure reports submitted pursuant to the Missouri Campaign Finance Disclosure Law within seven (7) business days of receipt of the audited report from the Ethics Compliance Officer. The Commission may vote to issue an inquiry regarding any potential violation of this chapter.

2. *Complaints.* Any natural person may file a complaint alleging any violation of this chapter. Any complaint shall be in writing, shall state all facts known by the complainant which have given rise to the complaint, and shall be sworn to, under penalty of perjury, by the complainant.

3. *Time for Receiving Complaints.* No complaint against a candidate or a candidate's committee shall be accepted by the Commission and the Commission shall not issue an inquiry within fifteen (15) days prior to the primary or general election at which such candidate is running for office.

4. *Notice of Complaint or Inquiry.* Within four (4) business days of receipt of a complaint or the Commission's vote to issue an inquiry, the Commission shall supply a copy of the complaint or inquiry to the person named in the complaint. If it is an inquiry, then it shall state that the Commission is issuing an inquiry after its own review of the campaign finance disclosure reports. If it is a complaint, then it will state the nature of the alleged complaint while deleting any material identifying the name of the complainant.

5. *Response.* The respondent may respond in writing to the allegations of the complaint or inquiry within ten (10) business days of delivery of the complaint or inquiry to respondent. The municipal official, candidate, or officer may provide the Commission with such information as the official deems appropriate to explain or justify the circumstances.

6. *Investigations.* Within thirty (30) business days of receipt of a response from the respondent to a complaint or inquiry, the Commission may, by an affirmative vote of at least three members, proceed to commence an investigation for the purpose of producing a final report and recommendations on the matter. Notice will be given to the respondent within four (4) business days of the result of a vote by the Commission to decide whether to commence an investigation.

7. *Hearings.* If an investigation commences, at the request of the municipal official, candidate, or officer, the Commission shall hold a hearing where the municipal official or officer can provide evidence and testimony and examine any other witnesses called to testify. The Commission shall have the power to examine witnesses under oath or affirmation and the power to subpoena all documents and persons necessary for their investigation.

8. *Disclosure Required.* The Commission shall disclose to the subject of the investigation any matter known to the Commission or its staff tending to negate guilt or mitigate the seriousness of the violation.

9. *No Ex Parte Communications.* No member of the Commission shall have an ex parte communication with any person about a complaint that is before the Commission.

10. *Findings, Final Report and Recommendations.* Prior to the issuance of its final report and recommendations, the Commission shall provide an opportunity for the municipal official, candidate, or officer to respond to the report and recommendations, and such response shall be released with the final report and recommendations. When, either as a result of investigation of a complaint or an inquiry issued upon the Commission's own review of campaign finance disclosure reports, the Commission determines that there are reasonable grounds to believe that a violation of this chapter has occurred, the Commission shall forward the complaint or inquiry and its final report and recommendations, with any response, to the person against whom the findings were made and to the City Counselor, who shall prosecute the violation upon his or her determination that probable cause exists. Before prosecuting the violation, the City Counselor shall confer with the Circuit Attorney to consider whether there is violation of state law. If the Circuit Attorney opts to prosecute the matter, then the City Counselor is not required to prosecute the matter in municipal court.

11. *Publication.* The Commission shall at quarterly intervals publish findings of violations of this chapter, which they have reasonable grounds to believe have occurred, in the City Journal. (1994 C., § 3.72.090; Ord. No. 70357, § 9, 10-25-2016)

3.72.100 Violations.

It shall be a violation of this chapter:

A. For any contributor to knowingly contribute to any candidate, committee, or person acting on behalf of a candidate or committee any amount exceeding the limitation amounts;

B. For any candidate, committee, or person acting on behalf of a candidate or committee to knowingly accept any contribution which exceeds the limitation amounts. An unauthorized contribution is knowingly accepted if it is not returned to the contributor within thirty (30) days of receipt of the unauthorized contribution;

C. For any committee treasurer to knowingly accept any contribution which exceeds the limitation amounts; a committee treasurer knowingly accepts an unauthorized contribution if it is not returned to the contributor within thirty (30) days of receipt of the unauthorized contribution;

D. For any candidate or committee treasurer to fail to return within thirty (30) days of receipt of the unauthorized contribution, a contribution which exceeds the limitation amounts, including interest or other premium earned by the contribution exceeding the authorized limitations and each and every day or portion thereof during which any violation of this provision is committed or continued shall be a separate offense;

E. For any person to make a contribution in the name of another person, or to knowingly permit his or her name to be used to effect such a contribution, or to knowingly accept a contribution made by one person in the name of another person;

F. For any person to knowingly fail to report contributions, with the intent to mislead or deceive. (1994 C., § 3.72.100; Ord. No. 70357, § 10, 10-25-2016)

Chapter 3.74

PLANETARIUM COMMISSION

Sections:

3.74.010 Established—Members—Removal.
3.74.020 Duties.

3.74.010 Established—Members—Removal.

There is established the Planetarium Commission in the City. The Commission shall consist of the following fifteen members:

A. The Director of Parks, Recreation and Forestry shall be a member and Chairman of the Planetarium Commission;

B. Fourteen members shall be appointed by the Mayor. These members shall be persons who have knowledge or experience in the fields of planetaria, astronomy and/or related science or have developed a high degree of interest in civic affairs of this City. The terms of each appointed member shall be four years or until his successor is appointed. The terms of the ten additional members first appointed shall be as follows: three members for one year, three members for two years, two members for three years and two members for four years;

C. The members of the Planetarium Commission as of April 1, 1971, will continue to serve until the expiration of their appointments;

D. Any member appointed by the Mayor may be removed for cause by the Mayor after written charges have been presented after a public hearing with represented counsel. The member shall have the right to be heard in person or by the counsel at the hearing. (1960 C., § 30.010; 1994 C., § 3.74.010; Ord. No. 55899, § 1, 1971; Ord. No. 49777, § 1, 1960.)

City Counselor Ops.: 10142

3.74.020 Duties.

The Planetarium Commission shall study and investigate the various facets of the planning, management and operation of the City Planetarium and advise the Mayor and make recommendations to him relative to the planning, management and operation of the City Planetarium. (1960 C., § 30.010; 1994 C., § 3.74.020; Ord. No. 49777, § 2, 1960.)

Chapter 3.76

RESERVED

Editor's Note:

Ord. No. 72042, § 8, adopted October 30, 2025, amended the Code by repealing former Ch. 3.76, §§ 3.76.010—3.76.040, which pertained to the Youth Commission, and derived from the 1960 Code, §§ 22.010—22.040; the 1994 Code, §§ 3.76.010—3.76.040; Ord. No. 47958 of 1956; and Ord. No. 48473 of 1957.

Chapter 3.78

AGENCY ON TRAINING AND EMPLOYMENT

Sections:

3.78.010 Created.

3.78.020 Director—Appointment—Duties.

3.78.030 Comprehensive training and employment plan.

3.78.010 Created.

The St. Louis Agency on Training and Employment is hereby created shall be the official training and employment planning and review agency for the City of St. Louis and shall be empowered to plan and operate a comprehensive training and employment program under the Job Training Partnership Act. (Public Law 99-570 as amended and any successor Acts (hereinafter "Act")). The St. Louis Agency on Training and Employment shall further be charged with the responsibility of review and comment on all training and employment proposals affecting the City. (1994 C., § 3.78.010; Ord. No. 62209, § 2(part), 1991; Ord. No. 57270, § 1(part), 1976; Ord. No. 57035, § 1(part), 1975.)

3.78.020 Director—Appointment—Duties.

A. A Director of the St. Louis Agency on Training and Employment shall be appointed by the Mayor. The Director shall carry out the administrative and technical work of the agency and is authorized to appoint personnel to perform the duties and functions of the department.

B. The Director of the St. Louis Agency on Training and Employment with the approval of the Board of Estimate and Apportionment shall have the power to enter into assurances and contracts for financial assistance to enable the City as a prime sponsor to carry out a comprehensive training and employment plan and to expend such funds provided pursuant to the Act by contract or otherwise. All such contracts shall be executed in the name of the City and shall be signed by the Director of the St. Louis Agency on Training and Employment and the Comptroller, approved as to form by the City Counselor, and filed with the Register. (1994 C., § 3.78.020; Ord. No. 62209, § 2(part), 1991; Ord. No. 57270, § 1(part), 1976; Ord. No. 57035, § 1(part), 1975.)

3.78.030 Comprehensive training and employment plan.

The St. Louis Agency on Training and Employment shall prepare a comprehensive training and employment plan to accomplish the purpose of the Act in providing job training and employment opportunities for economically disadvantaged, unemployed and underemployed persons, and to assure that training and other services lead to maximum employment opportunities and enhance self-sufficiency by establishing a flexible and decentralized system of federal, state and local programs. (1994 C., § 3.78.030; Ord. No. 62209, § 3, 1991; Ord. No. 57270, § 1(part), 1976; Ord. No. 57035, § 3, 1975.)

Chapter 3.80

REGIONAL CRIMINAL JUSTICE COMPUTERIZED INFORMATION PROCESSING SERVICE

Sections:

3.80.010 Cooperative agreement—Authorized.

3.80.020 Cooperative agreement—Contents generally.

3.80.030 Cooperative agreement—Cancellation.

3.80.040 REJIS Commission—Duties.
3.80.050 REJIS Commission—Appointment.
3.80.060 REJIS Commission—Representation.
3.80.070 REJIS Commission—Terms—Vacancies.
3.80.080 REJIS Commission—Bylaws.
3.80.090 REJIS Commission—Budget.
3.80.100 REJIS Commission—Dissolution.

3.80.010 Cooperative agreement—Authorized.

The Mayor, on behalf of the City, is authorized to enter into a cooperative agreement with the county of St. Louis, through its supervisor, upon passage and approval of a like ordinance of the legislative body of the county, to provide for the creation, development and operation of a regional computerized criminal justice information system. (1994 C., § 3.80.010; Ord. No. 57056, § 1(part), 1975.)

Constitution:

Art. 6 § 16 Cooperation by local governments with other governmental units

RSMo:

RSMo 70.210 et seq. (2016) Cooperation by political subdivision under contract

3.80.020 Cooperative agreement—Contents generally.

The cooperative agreement shall contain terms and conditions as may be approved by the City Counselor and shall further include, but not be limited to:

A. The exchange, interchange and processing of itemized criminal justice information, statistics and records pertaining to crime, criminal data and the courts, and for the acquisition, collection, classification, preservation and exchange of said itemized information in conjunction with information systems of the Federal Bureau of Investigation, the Missouri State Highway Patrol, the Missouri Supreme Court and other authorized criminal justice agencies;

B. The establishment of a joint regional commission to be known as the REJIS Commission and to be governed by the provisions of this chapter. (1994 C., § 3.80.020; Ord. No. 57056, § 1(1, 2(part)), 1975.)

3.80.030 Cooperative agreement—Cancellation.

The cooperative agreement shall provide that either party thereto may by ordinance cancel its participation effective the thirty-first day of December of any year so long as written notice of the proposed cancellation has been given to the other party not less than ninety days immediately preceding the date of proposed cancellation. Any cancellation shall not relieve any party participating in this cooperative contract from any obligation or liability for said party's share of the cost or expense incurred prior to the effective date of any cancellation. (1994 C., § 3.80.030; Ord. No. 57056, § 3, 1975.)

3.80.040 REJIS Commission—Duties.

The REJIS Commission shall supervise, manage, administer, operate and have charge of the regional criminal justice computerized information processing system. The members of the REJIS Commission are to

[The next page is 3-125]

be selected in the manner described in Sections 3.80.050—3.80.070. The REJIS Commission shall have the powers and duties set forth in this chapter and the REJIS Commission shall manage and operate the computerized information processing system. (1994 C., § 3.80.040; Ord. No. 57056, § 1(2(part)), 1975.)

3.80.050 REJIS Commission—Appointment.

The Commission shall consist of seven members, three of whom shall be appointed by the Mayor and three of whom shall be appointed by the supervisor of the county and one of whom shall be appointed jointly by the Mayor and supervisor. (1994 C., § 3.80.050; Ord. No. 57056, § 1(2a), 1975.)

3.80.060 REJIS Commission—Representation.

The appointing authorities, in making their respective appointments to the Commission, shall be guided so that the membership will reflect a balanced representation of law enforcement, prosecutional and correctional agencies and the judicial system. (1994 C., § 3.80.060; Ord. No. 57056, § 1(2b), 1975.)

3.80.070 REJIS Commission—Terms—Vacancies.

Members of the Commission shall serve at the pleasure of their respective appointing authorities, but not for a period in excess of two years unless reappointed. For the initial selection of members, the appointing authorities shall each designate two members to serve a one year term and one member to serve a two-year term. The one member appointed by joint action of the appointing authorities shall be appointed for a two-year term. Thereafter, each member of the Commission shall serve in such capacity until his or her successor is duly appointed and qualified.

In the event of a death, incapacity, resignation or removal of any member of the Commission prior to the expiration of his or her term, the appropriate appointing authority shall fill the vacancy by appointment in writing. (1994 C., § 3.80.070; Ord. No. 57056, § 1(2c, d), 1975.)

3.80.080 REJIS Commission—Bylaws.

The cooperative agreement shall provide that the Commission shall adopt bylaws which shall be filed with the Administrative Director of the county council and the Register of the City of St. Louis. Such bylaws shall include, but not be limited to:

A. Personnel procedures for the employment of a general manager and such other permanent and part-time staff as the Commission may deem necessary, procedures for the promotion, disciplining and termination of such employees in accordance with the principles of due process;

B. The requirement of an annual audit upon the close of the books of the fiscal year by an independent auditing firm;

C. The requirement of compliance with all federal and state laws and regulations regarding the preservation of the individual's right to privacy, the security and dissemination of all such information;

D. The authorization to purchase, lease or otherwise acquire all necessary equipment, facilities and materials to operate said information processing system or systems;

E. The authorization to accept, receive and expend funds, grants and services from the federal government or its agencies, and from instrumentalities of state and local governments;

F. The authorization to provide on-line and batch processing services to authorized units of state and local government and related criminal justice agencies, and to the courts, and to establish the charge to be assessed for such services, to prorate said charges among the users of such services as may be just and appropriate;

G. The authorization to assume, continue and perform the obligations of REJIS, incorporated and to provide for the transition of its functions to the Commission;

H. The authorization to contract or be contracted with governmental agencies and other agencies whether located within or without the boundaries of the City of St. Louis and the county of St. Louis. (1994 C., § 3.80.080; Ord. No. 58617, § 1(part), 1982; Ord. No. 57056, § 2(part), 1975.)

Editor's Note:

> Ordinance 58617, being the City's act taken pursuant to joint action with Saint Louis County, became effective upon adoption of Ordinance 10, 598 by the County.

3.80.090 REJIS Commission—Budget.

The cooperative agreement shall provide that the Commission, prior to the adoption of its annual budget, shall submit said budget to the Mayor of the City of St. Louis and the county executive of St. Louis

County for their comment. (1994 C., § 3.80.090; Ord. No. 58617, § 1(part), 1982; Ord. No. 57056, § 2(part), 1975.)

Editor's Note:

Ordinance 58617, being the City's act taken pursuant to joint action with Saint Louis County, became effective upon adoption of Ordinance 10, 598 by the County.

3.80.100 REJIS Commission—Dissolution.

In the event of the dissolution or termination of the REJIS Commission, all of the assets remaining after all liabilities or obligations of the Commission have been paid, satisfactorily discharged or adequate provisions made therefor, shall be distributed to parties to the cooperative agreement in accordance with their respective interests in and to said assets, as the same may be determined by the members of the Commission. (1994 C., § 3.80.100; Ord. No. 57056, § 4, 1975.)

Chapter 3.81

ENHANCED ENTERPRISE ZONE BOARD

Sections:

3.81.010 Established—Terms.
3.81.020 Powers and duties.
3.81.030 Amendments.
3.81.040 Appointment.
3.81.050 Duties of Board of Aldermen.

3.81.010 Established—Terms.

Pursuant to RSMo 135.957 (2000), as amended, there is hereby established a seven-member Enhanced Enterprise Zone Board of the City of St. Louis, Missouri (the "EEZ Board") to operate within the boundaries of the City of St. Louis, Missouri. The members of such EEZ Board shall be the following, pursuant to RSMo 135.957: One (1) member shall be appointed by the St. Louis Board of Education; one (1) member shall be appointed by other affected taxing districts; and the remaining five (5) members shall be appointed by the Mayor as the Chief Elected Official of the City of St. Louis. The Board of Education member and the other affected taxing districts members shall each have initial terms of five (5) years. Of the five (5) members appointed by the Mayor, two shall have initial terms of four (4) years, two shall have initial terms of three (3) years, and one shall have an initial term of two (2) years. Thereafter, members shall serve terms of five (5) years. All vacancies shall be filled in the same manner as the original appointment. For inefficiency or neglect of duty or misconduct in office, a member of the EEZ Board may be removed by the applicable appointing authority. The members of the EEZ Board annually shall elect a Chair from among the members. A majority of the members shall constitute a quorum of such EEZ Board for the purpose of conducting business and exercising the powers of the EEZ Board and for all other purposes. Action may be taken by the EEZ Board upon a vote of a majority of the members present. The EEZ Board shall adopt by-laws governing the conduct of its proceedings consistent with applicable statutes and with this chapter. (1994 C., § 3.81.010; Ord. No. 67029, § 1, 2006.)

3.81.020 Powers and duties.

The EEZ Board is hereby authorized to exercise those obligations, duties, powers and functions authorized by RSMo 135.950 through 135.973, as the same may be amended or revised from time to time, to conduct the activities necessary to advise the Board of Aldermen on the designation of Enhanced Enterprise Zones in the City of St. Louis, to perform any other advisory duties with respect to such zones by the Board of Aldermen, to perform reviews and assessments of zone activities as such activities relate to the annual reports as set forth in RSMo 135.960. (1994 C., § 3.81.020; Ord. No. 67029, § 2, 2006.)

3.81.030 Amendments.

It is hereby recognized that the requirements of Missouri Statutes as pertain to the number, qualifications, terms and manner of appointment of persons to serve on the EEZ Board may, from time to time, be revised. The Mayor and such other persons as may be authorized to act with respect to appointments to the EEZ Board under Missouri Statutes in the future are hereby authorized to act in accordance with Missouri Statutes, as from time to time revised, so that at all times hereinafter the EEZ Board shall be and remain legally authorized to exercise the powers of an EEZ Board under Missouri Statutes, without further action of the Board of Aldermen. (1994 C., § 3.81.030; Ord. No. 67029, § 3, 2006.)

3.81.040 Appointment.

The Mayor of the City of St. Louis is hereby authorized to make the appointments referenced as mayoral appointments in Section 3.81.010, within thirty (30) days following March 3, 2006. The St. Louis Board

of Education is hereby authorized to make the appointment referenced as the Board of Education appointment in Section 3.81.010. The other affected taxing districts are hereby authorized, collectively and as a group, to make the one appointment referenced as the other taxing districts appointment in Section 3.81.010. (1994 C., § 3.81.040; Ord. No. 67029, § 4, 2006.)

3.81.050 Duties of Board of Aldermen.

Upon adoption of this chapter, the Clerk of the Board of Aldermen is hereby directed to promptly, by certified mail, return receipt requested, notify the St. Louis Board of Education that such Board of Education is authorized to appoint one person to the EEZ Board, and that such appointment shall be effective upon the later of March 3, 2006 or the date upon which such Board of Education makes such appointment. Upon adoption of this chapter, the Clerk of the Board of Aldermen is also hereby directed to promptly, by certified mail, return receipt requested, notify the other affected taxing districts that such districts are, collectively and as a group, authorized to appoint one person to the EEZ Board, and that such appointment shall be effective upon the later of March 3, 2006 or the date upon which such districts make such appointment. Such notifications shall request that the Board of Education and the other affected taxing districts make such appointments within thirty (30) days from March 3, 2006. (1994 C., § 3.81.050; Ord. No. 67029, § 5, 2006.)

Chapter 3.82

LAND REUTILIZATION AUTHORITY

For collection of delinquent real estate taxes, see § 5.08.040.

Sections:

3.82.010 Conveyance of title.

3.82.020 Imposition of obligation.

3.82.030 Affirmative defense.

3.82.040 Amending effect of chapter.

3.82.010 Conveyance of title.

Any person or persons owning real property in the City may tender a warranty deed to the Land Reutilization Authority of the City conveying title to any parcel of real property. If the warranty deed is accepted by the Land Reutilization Authority and is recorded of record it shall then act as a complete legal defense to the former property owner to any prosecution instituted in the City Courts for violation of any ordinance enforced by the Building Commissioner or the Health Commissioner arising from the condition then in existence on the parcel of real property and any improvements located thereon, subject to the following conditions:

A. The property owner is able to convey complete and clear title to the parcel of real property free and clear of all liens and encumbrances;

B. The defense provided by the chapter can be asserted only if the Land Reutilization Authority has first accepted the tender of the warranty deed and has recorded it of record in the Recorder of Deed's Office. The property owner shall obtain from the executive director of the Land Reutilization Authority a written acknowledgment that the deed tendered has been accepted and the book and page in the Recorder of Deed's Office where it has been recorded. The property owner, as a condition to his acknowledgment, shall reimburse the Land Reutilization Authority for any cost which it would have to expend in connection with its determination as to the status of the title to the parcel of real property. (1994 C., § 3.82.010; Ord. No. 56469, § 1, 1973.)

RSMo:

RSMo 99.300 et seq. (2016) Land clearance for redevelopment authority law

Cases:

The Municipal Land Reutilization Law does not violate the equal protection clauses of either the state or federal constitution. *Collector of Revenue of City of St. Louis v. Parcels of Land Encumbered with Delinquent Tax Liens,* 517 S.W. 2d 49 (1974).

The Land Reutilization Authority of St. Louis is an arm of the State performing only governmental functions and is therefore not liable for torts committed by it in the management of its trust property. *Garrison-Wagner v. City of St. Louis,* 646 S.W. 2d 131 (Mo. App. 1983).

Where title to building was vested in the Land Reutilization Authority of St. Louis, the City of St. Louis was not liable for torts committed by the Authority in the management of the building. *Garrison-Wagner v. City of St. Louis,* 646 S.W. 2d 131 (Mo. App. 1983).

3.82.020 Imposition of obligation.

Nothing in this chapter shall be construed as attempting to impose on the Land Reutilization Authority the obligation or responsibility to accept any warranty deed, conveying title of real property, when it is tendered. (1994 C., § 3.82.020; Ord. No. 56469, § 2, 1973.)

3.82.030 Affirmative defense.

The acceptance of a warranty deed, conveying title to real property to the Land Reutilization Authority

and the recording of the deed, subject to the terms and conditions referred to in Section 3.82.010, shall be an affirmative defense which must be asserted by the real property owner. (1994 C., § 3.82.030; Ord. No. 56469, § 31, 1973.)

3.82.040 Amending effect of chapter.

The enactment of this chapter shall amend all ordinances which are enforced by the Building Department and Health Department for violation of which prosecutions are brought in the City Courts, by adding the provisions of this chapter to each of the said ordinances. (1994 C., § 3.82.040; Ord. No. 56469, § 4, 1973.)

Chapter 3.83

TAX INCREMENT FINANCING COMMISSION

Sections:

3.83.010 Creation—Commission.
3.83.020 Appointment.
3.83.030 Terms.
3.83.040 Powers.
3.83.050 Amendments.

3.83.010 Creation—Commission.

The creation of a nine person commission, as set forth in RSMo 99.820.2, which shall hereinafter be known as the Tax Increment Financing Commission of the City of St. Louis (the "Commission"), is hereby approved. This Commission shall consist of: two members appointed by the Board of Education of the City of St. Louis; one member appointed by the affected districts, to represent all other districts levying ad valorem taxes within the area selected for a redevelopment project or the redevelopment area, excluding representatives of the governing body of the municipality; and six members appointed by the chief elected officer of the municipality, with the consent of the majority of the governing body of the municipality. (1994 C., § 3.83.010; Ord. No. 62477, § 2, 1991.)

3.83.020 Appointment.

The Mayor is hereby requested to appoint six (6) persons to serve as Commissioners of the Commission; provided, however, that each such appointment shall be subject to the consent of a majority of this Board. The Commissioners appointed by the Mayor may not then be serving by appointment on any other public board or commission of the City of St. Louis and shall include one Commissioner with a degree or experience in finance, one Commissioner with a license or experience in real estate and one Commissioner with a degree in law. (1994 C., § 3.83.020; Ord. No. 62477, § 4, 1991.)

3.83.030 Terms.

Of the Commissioners first appointed by the Mayor, two (2) shall be designated to serve on the Commission for terms of two (2) years from the date of their appointment, another two (2) shall be designated to serve on the Commission for terms of three (3) years from the date of their appointment and the remaining two (2) shall be designated to serve on the Commission for terms of four (4) years from the date of their appointment; thereafter, each vacancy resulting from the expiration of a term shall be filled in the same manner as set forth above, and each person so appointed shall be appointed to serve on the Commission for a term of four (4) years except that the initial term of a person appointed to fill a vacancy resulting from the resignation, death or incapacity of a Commissioner during an unexpired term shall consist of the unexpired portion of such term. (1994 C., § 3.83.030; Ord. No. 62477, § 5, 1991.)

3.83.040 Powers.

The Commission is hereby authorized to exercise all powers which may be exercised by such commissions pursuant to the statute, as may be revised from time to time, and to adopt bylaws addressing the operations of the Commission which are consistent with the statute and this chapter. The Commission shall hold public hearings and provide notice pursuant to RSMo 99.825 to 99.830. The Commission shall vote on all proposed redevelopment plans, redevelopment projects and designations of redevelopment areas, and amendments thereto, within thirty days following completion of the hearing on any such plan, project or designation and shall make recommendations to the governing body within ninety days of the hearing referred to in RSMo 99.825 concerning the adoption of, or amendment to redevelopment plans and redevelopment projects and the designation of redevelopment areas. The Commission shall also adopt bylaws governing its proceedings and operations which are consistent with the statute and this chapter; provided, however, that no bylaws affecting the Commission's proceedings and operations shall be voted on or approved by the Commission without prior written notice to and opportunity to participate and vote by the members of the Commis-

sion to be appointed by the Board of Education of the City of St. Louis; provided further however that such limitation shall not prevent the operation of the Commission or the adoption or amendment of bylaws in the event that the Board of Education of the City of St. Louis, after notice, fails to appoint its Commissioners. (1994 C., § 3.83.040; Ord. No. 62477, § 3, 1991.)

3.83.050 Amendments.

It is hereby recognized that the requirements of RSMo 99.800—99.865 as pertain to the number, qualifications, terms and manner of appointment of persons to serve on the Commission may, from time to time, be revised. The Mayor and such other persons as may be directed to act with respect thereto under the Statute in the future are hereby authorized to act in accordance with RSMo 99.800—99.865, as from time to time revised, so that at all times hereinafter the Commission shall be and remain legally authorized to exercise the powers of a commission under RSMo 99.800—99.865, without further action of this Board, except to consent to appointments by the Mayor of persons to serve on the Commission. (1994 C., § 3.83.050; Ord. No. 62477, § 6, 1991.)

Chapter 3.84

PLANNED INDUSTRIAL EXPANSION AUTHORITY

See also § 3.48.220

RSMo:

RSMo 100.300 et seq. (2016) Planned industrial expansion

Cases:

Planned Industrial Expansion statute was not local or special law. *State ex rel. Atkinson v. Planned Indus. Expansion Authority of St. Louis,* 517 S.W. 2d 36 (1975).

Sections:

3.84.010 Approval.

3.84.020 Notification of adoption—Commissioners—Appointment.

3.84.030 Commissioners—Qualifications.

3.84.010 Approval.

As required by Senate Bill No. 362, passed by the 74th General Assembly of the State of Missouri and thereafter on August 16, 1967 approved and signed by the Governor and duly became a law on October 13, 1967, approval is given to the exercise in the City by the Planned Industrial Expansion Authority of the powers, functions and duties of an authority. (1994 C., § 3.84.010; Ord. No. 54788, § 1, 1967.)

Editor's Note:

The act referenced above is The Planned Industrial Expansion Law (RSMo 100.300 et seq. (2016)).

3.84.020 Notification of adoption—Commissioners—Appointment.

The Clerk of the Board of Aldermen is directed to promptly notify the Mayor upon the adoption of Ordinance 54788 and deliver to the Mayor a copy thereof duly signed by the President of the Board of Aldermen and attested by the proper members of the Board. The Mayor is requested to appoint twenty-five Commissioners of the Planned Industrial Expansion Authority as authorized by Section 4 of the Planned Industrial Expansion Law. (1994 C., § 3.84.020; Ord. No. 54788, § 2, 1967.)

Editor's Note:

The act referenced above is RSMo 100.330 et seq. (2016).

3.84.030 Commissioners—Qualifications.

The Commissioners shall meet the requirements of the state law, shall be representative of the community as a whole and shall be appointed regardless of race, creed, national origin or political affiliation. (1994 C., § 3.84.030; Ord. No. 54788, § 3, 1967.)

Chapter 3.85

LAND CLEARANCE FOR REDEVELOPMENT AUTHORITY

Sections:

3.85.010 Approval.

3.85.020 Notification of adoption—Commissioners—Appointment.

3.85.010 Approval.

As required by Senate Bill 129, passed by the Sixty-sixth General Assembly of the State of Missouri and thereafter on July 11, 1951, approved and signed by the Governor and which duly became a law on October 9, 1951, approval is hereby given to the exercise in the City of St. Louis by the Land Clearance for Redevelopment Authority of the City of St. Louis of the powers, function and duties of an authority. (1994 C., § 3.85.010; Ord. No. 45977, § 1, 1952.)

Editor's Note:

The act reference above is the Land Clearance for Redevelopment Authority Law (RSMo 99.300 et seq. (2016)).

3.85.020 Notification of adoption—Commissioners—Appointment.

The Clerk of the Board of Aldermen is hereby directed to promptly notify the Mayor upon the adoption of Ordinance 45977 and deliver to the Mayor a copy thereof duly signed by the President of the Board of Aldermen and attested by the proper members of said Board. The Mayor is hereby requested to proceed to appoint five Commissioners of the Land Clearance for Redevelopment Authority of the City of St. Louis as authorized by Section 2, 4(e) of the Land Clearance for Redevelopment Authority Law. (1994 C., § 3.85.020; Ord. No. 45977, § 2, 1952.)

Editor's Note:

The act referenced above is RSMo 99.340 (2016).

Chapter 3.86

NEIGHBORHOOD REHABILITATION

Sections:

3.86.010 Acquisition of houses—Purpose.

3.86.020 Appraisal.

3.86.030 Rehabilitation demonstration house fund.

3.86.040 Sale of property.

3.86.010 Acquisition of houses—Purpose.

The Director of Public Safety with the approval of the Comptroller is authorized to acquire single or two family dwelling houses and the parcels of land on which the dwelling houses are located. Each of the dwelling houses shall be situated in an area designated a neighborhood rehabilitation area by the Community Development Commission and there shall be no more than one of the dwelling houses in each of the areas. Each dwelling house shall be used for the following purposes:

A. Provide a neighborhood office for use by City personnel concerned with the neighborhood rehabilitation project and a meeting place in conjunction therewith; and

B. Renovate, recondition, repair and reconstruct the residence so as to demonstrate the feasibility, ways and means of making a residence in need of rehabilitation attractive and useful at a realistic cost. (1994 C., § 3.86.010; Ord. No. 51206, § 1, 1962.)

3.86.020 Appraisal.

Prior to the acquisition of the dwelling house and land as provided for in Section 3.86.010 appraisals shall be made by at least two disinterested appraisers. In the event the two appraisals differ by more than fifteen percent, then a third appraiser shall be retained to make an appraisal. The price paid for the land and dwelling house shall not exceed the average of the total number of appraisals made. The average amount is to be computed by taking the sum of the total appraisals and dividing by the number of appraisals made. Conveyance of the premises shall be taken in the name of the City by a general warranty deed. In the event the grantor deems it necessary the deed may limit the use of the premises to the purposes stated in this chapter. (1994 C., § 3.86.020; Ord. No. 51206, § 2, 1962.)

3.86.030 Rehabilitation demonstration house fund.

There is created a revolving fund to be known as the rehabilitation demonstration house fund. The moneys in the fund are to be kept separate and apart from any and all other moneys of the City. The moneys in the fund shall be used to pay the cost of:

A. Acquisition of dwelling houses and land, appraisers' fees, closing costs and other incidental costs related to the acquisition;

B. Carrying out the purposes of the acquisition as expressed in Section 3.86.010;

C. Normal operating and maintenance expenses incurred in the use of the dwelling house. (1994 C., § 3.86.030; Ord. No. 51206, § 3, 1962.)

3.86.040 Sale of property.

Upon completion of the usefulness of the dwelling house for the purposes stated in this chapter and no later than at the time the rehabilitation project in the neighborhood is completed, negotiations for the disposal and sale of the dwelling house and land shall commence. The property shall be sold in the manner provided by the Charter. The moneys received from the sale shall be placed in the rehabilitation demonstration house fund or future acquisition and use in the manner provided in this chapter. The provisions of Ordinance 49111 shall not apply to the moneys so received from the sale. (1994 C., § 3.86.040; Ord. No. 51206, § 4, 1962.)

Chapter 3.87

NEIGHBORHOOD IMPROVEMENT DISTRICTS

Editor's Note:

References in this chapter to the Act are to the Neighborhood Improvement District Act RSMo 67.453 et seq. (2016).

Sections:

3.87.010	**Acceptance of the Neighborhood Improvement District Act.**
3.87.020	**Rules of construction.**
3.87.030	**Definitions.**
3.87.040	**Special obligation bonds and special assessments.**
3.87.050	**Preliminary project statement.**
3.87.060	**District initiation.**
3.87.070	**Consideration and establishment of district—Proposed assessments—Hearing.**
3.87.080	**Special assessments.**
3.87.090	**Nondiscrimination and disadvantaged business enterprises participation.**

3.87.010 Acceptance of the Neighborhood Improvement District Act.

The provisions of the "Neighborhood Improvement District Act" (hereinafter referred to as the "Act"), passed by the 86th General Assembly of the Missouri Legislature pursuant to Article 3, Section 38(c) of the Missouri Constitution are hereby accepted and incorporated by reference, including all future amendments thereto, if any. All such provisions shall apply where applicable to any person or corporation acting under this chapter. (1994 C., § 3.87.010; Ord. No. 62346, § 1, 1991.)

Editor's Note:

The act referenced above is RSMo 67.453 et seq. (2016).

3.87.020 Rules of construction.

It is the intent of the Board of Aldermen to enact this chapter as a coordinative procedural supplement to the Neighborhood Improvement District Act. This chapter is not to be construed in any instance as permitting what the Act may prohibit or prohibiting what the Act may permit. (1994 C., § 3.87.020; Ord. No. 62346, § 2, 1991.)

Editor's Note:

The act referenced above is RSMo 67.453 et seq. (2016).

3.87.030 Definitions.

The following terms, whenever used or referred to in this chapter, shall be construed to have the following meanings unless a different intent clearly appears from the context:

A. "Acquire" means the acquisition of property or interests in property by purchase, gift, condemnation or other lawful means and may include the acquisition of existing property and improvements already owned by the City.

B. "Consultant" means engineers, architects, planners, attorneys, financial advisors, accountants, investment bankers and other persons deemed competent to advise and assist the Board of Aldermen in planning and making improvements.

C. "Cost" means all costs incurred in connection with an improvement, including, but not limited to, costs incurred for the preparation of preliminary reports, the preparation of plans and specifications, the preparation and publication of notices of hearings, ordinances and other proceedings, fees and expenses of consultants, interest accrued on borrowed money during the period of construction, underwriting costs and other costs incurred in connection with the issuance of bonds or notes, establishment of reasonably required reserve funds for bonds or notes, the cost of land, materials, labor and other lawful expenses incurred in planning, acquiring and doing any improvement, reasonable construction contingencies, and work done or services performed by the City in the administration and supervision of the improvement.

D. "Improve" means to construct, reconstruct, maintain, restore, replace, renew, repair, install, equip, extend, or to otherwise perform any work which will provide a new public facility or enhance, extend or restore the value or utility of an existing public facility.

E. "Improvement" means any one or more public facilities or improvements which confer a benefit on property within a definable area and may include or consist of a reimprovement of a prior improvement. Improvements do not include services not usually associated with the physical betterment of property, whether real or personal. Improvements include, but are not limited to, the following activities:

1. To acquire property or interests in property when necessary or desirable for any purpose authorized by the Act and this chapter;

2. To open, widen, extend and otherwise to improve streets, paving and other surfacing, gutters, curbs, sidewalks, crosswalks, driveway entrances and structures, drainage works incidental thereto, and service connections from sewer, water, gas and other utility mains, conduits or pipes;

3. To improve main and lateral storm water drains and sanitary sewer systems, and appurtenances thereto;

4. To improve street lights and street lighting systems;

5. To improve water works systems;

6. To improve parks, playgrounds and recreational facilities;

7. To improve any street or other facility by landscaping, planting of trees, shrubs, and other plants;

8. To improve dikes, levees and other flood control works, gates, lift stations, bridges and streets appurtenant thereto;

9. To improve vehicle and pedestrian bridges, overpasses and tunnels;

10. To improve retaining walls and area walls on public ways or land abutting thereon;

11. To improve property for off-street parking facilities including construction and equipment of buildings thereon; and

12. To acquire or improve any other public facilities or improvements deemed necessary by the Board of Aldermen;

The term "public facilities or improvements" may include improvements to property located within privately owned subdivisions located within the City if the Board of Aldermen specifically finds that the proposed facilities or improvements directly benefit, convenience and promote the welfare of the City.

F. "Neighborhood improvement district" means an area of the City with defined limits and boundaries which is created by vote or by petition in accordance with the provisions of the Act and this chapter and which is benefitted by an improvement and subject to special assessments against the real property therein for the cost of the improvement.

G. "Owner" or "owner of record" means any individual, association, club, joint stock company, syndicate, partnership, corporation, receiver, trustee, or other person or entity lawfully holding title to real property, as shown by the records of the Recorder of Deeds of the City, which is located within a neighborhood improvement district.

H. "Property" or "real property" means any parcel of land or any condominium located within an established or proposed neighborhood improvement district which is subject to special assessment as a result of any improvement made in accordance with the Act and this chapter. The terms "property" or "real property" specifically do not include any parcel of land owned by any governmental entity unless such governmental entity is otherwise subject to special assessment by law. (1994 C., § 3.87.030; Ord. No. 62346, § 3, 1991.)

Editor's Note:

The act referenced above is RSMo 67.453 et seq. (2016). Section 3 of Ordinance 62346 was incomplete as submitted to codifier.

3.87.040 Special obligation bonds and special assessments.

The Board of Aldermen may incur indebtedness and issue temporary notes and general obligation bonds of the City pursuant to the Act and this chapter to pay for all or part of the cost of such improvements. An improvement may be combined with one or more other improvements for the purpose of issuing a single series of general obligation bonds to pay all or part of the cost of such improvements, but separate funds or accounts shall be established within the records of the City for each neighborhood improvement district as provided in Section 11 of the Act and Section 3.87.080 J of this chapter. The City shall assess special assessments on the property deemed by the Board of Aldermen to be benefitted by each improvement pursuant to Section 3 of the Act and Section 3.87.060 of this chapter. The City shall use the moneys collected from such special assessments to reimburse the City for all amounts paid or to be paid by it as principal of and interest on its general obligation bonds issued for such improvements. (1994 C., § 3.87.040; Ord. No. 62346, § 4, 1991.)

Editor's Note:

The act referenced above is RSMo 67.453 et seq. (2016). Section 4 of Ordinance 62346 was incomplete as submitted to codifier.

3.87.050 Preliminary project statement.

A. Any Alderman desiring to introduce an ordinance submitting the question of creating a neighborhood improvement district to qualified voters pursuant to Section 3.87.060 A of this chapter shall, and any person desiring to prepare and file with the City Register a petition to create such a district pursuant to Section 3.87.060 B of this chapter may, prior to taking any steps to initiate the creation of a district, prepare and submit to the Clerk of the Board of Aldermen a preliminary project statement regarding the proposed district. Said preliminary statement shall contain the following information:

1. The project name for the proposed district;

2. The general nature of the proposed district, including, to the extent possible, an identification and description of all improvements proposed to benefit the proposed district;

3. The boundaries of the proposed district to be assessed;

4. The estimated cost of all proposed improvements;

5. The estimated amount of any bond issue necessary to finance the costs of the proposed improvements and a debt service retirement schedule;

6. The proposed method or methods of assessing the benefits inuring to property located within the proposed district;

7. An estimate of costs to be assessed against property located within the proposed district, using a per front foot or per square foot basis or any other reasonable assessment basis which results in imposing substantially equal burdens or shares of the cost upon property similarly benefitted;

8. A compatibility statement prepared by the City's Community Development Agency describing the relationship of the proposed district and proposed improvements to any existing or contemplated neighborhood, area or City redevelopment plan or planning process, the primary purpose of which shall be to ensure that the proposed district does not conflict with other development efforts, whether short- or long-term. The Community Development Agency shall respond to any written request for a compatibility statement within fifteen (15) days of the date of such request.

B. Any Alderman attempting to prepare a preliminary project statement may request assistance from the City's Board of Public Service. Any other person attempting to prepare a preliminary project statement may request assistance from his or her Alderman, who may then request assistance from the Board of Public Service. The Board of Public Service, within sixty (60) days of such a request, shall, with the cooperation of the requesting Alderman and any necessary City department, agency or employee, prepare a preliminary statement and shall mail one copy to the Alderman and file one copy with the Clerk of the Board of Aldermen. The Board of Public Service shall include in the preliminary statement its recommendation on the advisability of the proposed district and may include such additional recommendations or information which it deems relevant or necessary.

C. Pursuant to Section 3.87.070, the Board of Aldermen is required to consider an applicable project statement prior to making a decision concerning the advisability of the proposed neighborhood improvement district. Any person attempting to create a neighborhood improvement district by petition, therefore, is advised to prepare and submit a preliminary project statement under this section of the chapter prior to taking any further steps to initiate the creation of such a district. The preparation of a preliminary project statement under this section will allow a preliminary review of the proposed district prior to incurring the expense of, and exerting the effort necessary for, the petition process. The preparation of a preliminary project statement by a person seeking to initiate by petition a neighborhood improvement district, however, is not a requirement to the filing of a petition under Section 3.87.060 B of this chapter. (1994 C., § 3.87.050; Ord. No. 62346, § 5, 1991.)

3.87.060 District initiation.

To establish a neighborhood improvement district the Board of Aldermen shall comply with either of the procedures described in Subsection A or B of this section.

A. 1. The Board of Aldermen may by ordinance submit the question of creating a neighborhood improvement district to all qualified voters residing within such district at a general or special election called for that purpose. Such ordinance shall set forth the project name for the proposed district, the general nature of the improvement or improvements proposed, the estimated cost of any such improvements, the boundaries of the proposed neighborhood improvement district to be assessed, the proposed method or methods of assessment and a legal notice of the neighborhood improvement district election. The notice of election shall contain the date and time of the election, a statement that the Board of Aldermen has called the election, the project name for the proposed neighborhood improvement district, the general nature of the improvement or improvements proposed, the estimated cost of any such improvements, the boundaries of the proposed neighborhood improvement district to be assessed, the proposed method or methods of assessment, a statement that the final cost of any such improvements assessed against property within the district and the amount of general obligation bonds issued therefor shall not exceed the estimated cost of such improvements, as stated in such notice, by more than twenty-five percent, and a sample ballot containing the question of creating a neighborhood improvement district. The notice of election shall be in substantially the form established by Exhibit A to the ordinance codified in this chapter.

2. Upon the passage of such an ordinance and the signing by the Mayor and the enactment of said ordi-

nance the Clerk of the Board of Aldermen, not later than 5:00 p.m. on the eighth Tuesday prior to the anticipated election day, shall: (a) notify the St. Louis Board of Election Commissioners in writing that the Board of Aldermen has called for a neighborhood improvement district election; and (b) include in such notice a certified copy of the election ordinance.

3. The ballot upon which the question of creating a neighborhood improvement district is submitted to the qualified voters residing within the proposed district shall contain a question in substantially the following form:

Shall the City of St. Louis be authorized to create a neighborhood improvement district proposed for the [project name for the proposed district] and incur indebtedness and issue general obligation bonds to pay for all or part of the cost of public improvements within such district, the cost of all indebtedness so incurred to be assessed by the Board of Aldermen of the City of St. Louis on the property benefited by such improvements?

4. The Board of Aldermen may create a neighborhood improvement district when the question of creating such district has been approved by the vote of the percentage of electors within such district voting thereon that is equal to the percentage of voter approval required for the issuance of general obligation bonds of the City under Article VI, Section 26 of the Missouri Constitution. (See Appendix A, attached to the ordinance codified in this chapter and on file in the office of the City Clerk.)

B. As an alternative to the procedure described in Subsection A of this section, the Board of Aldermen may create a neighborhood improvement district when a proper petition has been signed by the owners of record of at least two-thirds by area of all real property proposed to be assessed within such proposed district. The petition, in order to become effective, shall be filed with the City Register who shall immediately forward a legible copy thereof to the Assessor of the City of St. Louis and the Clerk of the Board of Aldermen. A proper petition for the creation of a neighborhood improvement district shall set forth the project name for the proposed district, the general nature of the improvement or improvements proposed, the estimated cost of any such improvement, the boundaries of the proposed neighborhood improvement district to be assessed, the proposed method or methods of assessment, a notice that the names of the signers may not be withdrawn later than seven days after the petition is filed with the City Register, and a notice that the final cost of any such improvements assessed against property within the district and the amount of general obligation bonds issued therefor shall not exceed the estimated cost of such improvements, as stated in such petition, by more than twenty-five percent. The petition shall be prepared in substantially the form established by Exhibit B to the ordinance codified in this chapter, as amended.

1. The petition shall be verified by the Assessor of the City of St. Louis by: (a) compiling a list of the owners of record of all real property proposed to be assessed within the proposed district at the time of filing the petition with the City Register; (b) calculating the total area of such real property in acres or square feet; (c) calculating the total area of the real property represented by signatures in acres or square feet; and (d) comparing the total area of the real property represented by signatures with the total area of all real property proposed to be assessed within the proposed district. The signatures of all owners of record for any single parcel of real property located within a proposed neighborhood improvement district must appear on the petition in order to be considered by the Assessor in the calculation of real property area for purposes of verifying the petition. No signature appearing on a neighborhood improvement district petition shall be considered valid unless the following information is printed on the face of the petition next to the signature: (a) the petitioner's name; (b) the address of the petitioner's real property located within the proposed district; and (c) the address of the petitioner, if different from the address of his or her real property located within the proposed district. Owners of real property located within the proposed district other than individuals may be included in the petition by the signature of any officer, director or other agent authorized to sign the petition on their behalf; provided, however, that if any of the owners of real property who have signed the petition are corporations, the corporate signature shall not be valid unless the following authorization documentation is provided: (a) if the signature is that of the president of the corporation, a copy of the annual registration report from the Secretary of State for the year that the petition is signed shall be attached to the petition; (b) if the signature is that of another officer, or of a director or an agent of the corporation, then a

copy of the corporate resolution or incumbency certificate authorizing that officer, director, or agency to sign the petition shall be attached to the petition.

2. Owners of condominiums pursuant to Missouri's Uniform Condominium Act, RSMo Ch. 448 (1986), which are located within a proposed neighborhood improvement district are owners of record of real property for purposes of the petition process. In calculating the area of a condominium owner's real property interest the Assessor shall refer to the records of the Assessor and the condominium declaration on file in the office of the City's Recorder of Deeds. The Assessor shall multiply that percentage of interest assigned to the owner as found in the applicable condominium declaration against the total area of the tract of land on which the condominium is located to determine the owner's record interest for purposes of the petition process.

3. In the event that the total area of real property represented by signatures equals or exceeds two-thirds of the total area of all real property subject to assessment within the proposed district, the Assessor shall then verify that the signatures appearing on the petition are the signatures of owners of record of real property located within the proposed district. The Assessor shall verify the signatures through the records of the City's Recorder of Deeds or by any other reasonable, accurate means.

4. Upon verification, the Assessor shall prepare a certificate showing the following information: (a) the total number of acres (or square feet) in the proposed district; (b) the total number of acres (or square feet) owned by the owners of real property who have signed the petition; and (c) a recitation that these numbers have been verified against property ownership records of the City of St. Louis. The Assessor shall then forward the aforesaid certificate and a certified copy of the verified petition to the Clerk of the Board of Aldermen. The Board of Aldermen shall not consider the advisability of the proposed district or the proposed improvements until such time as the Assessor's certificate and a certified copy of the verified petition has have been received. (1994 C., § 3.87.060; Ord. No. 63516, § 1, 1995; Ord. No. 62346, § 6, 1991.)

3.87.070 Consideration and establishment of district—Proposed assessments—Hearing.

In the creation of a neighborhood improvement district the Board of Aldermen shall consider the advisability of the district, propose assessments to be made against the real property located within the district, hold a hearing on the establishment of the district and the proposed assessments and establish the district in accordance with the following procedures:

A. Upon receiving the requisite voter approval at an election or upon the filing of a proper petition with the City Register, the Clerk of the Board of Aldermen shall refer the proposal to create the neighborhood improvement district, whether by the election or petition process, to the City's Board of Public Service for the preparation of a project statement. In the event of an election the Clerk shall refer the original ordinance. In the event of the filing of a petition the Clerk shall refer a copy of the verified petition. The Board of Public Service, within sixty (60) days of any such referral, shall, with the cooperation of any necessary City department, agency or employee, prepare the aforementioned project statement and file said statement with the Clerk of the Board of Aldermen. A copy of the project statement shall be mailed to the person or persons who introduced the election ordinance to the Board of Aldermen or to the person or persons who filed the neighborhood improvement district petition with the City Register. A copy of the project statement shall also be filed with the City Register and shall be open for public inspection. The project statement shall contain the following information:

1. The project name for the proposed district;

2. The general nature of the proposed district, including, to the extent possible, an identification and description of any improvements proposed to benefit the proposed district;

3. The boundaries of the proposed district to be assessed;

4. The estimated cost of all proposed improvements;

5. The estimated amount of any bond issue necessary to finance the costs of the proposed improvements, and a debt service retirement schedule;

6. The proposed method or methods of assessing the benefits inuring to property located within the proposed district;

7. An estimate of costs to be assessed against property located within the proposed district, using a per front foot or per square foot basis or any other reasonable assessment basis which results in imposing substantially equal burdens or shares of the cost upon property similarly benefitted;

8. A compatibility statement prepared by the City's Community Development Agency describing the relationship of the proposed and proposed improvements to any existing or contemplated neighborhood, area or City redevelopment plan or planning process, the primary purpose of which shall be to ensure that the proposed district does not conflict with other development efforts, whether short- or long-term. The Community Development Agency shall respond to any request from the Board of Public Service for a compatibility statement within fifteen (15) days of the date of such request.

The Board of Public Service shall include in the project statement its recommendation on the advisability of the proposed district and may include such additional recommendations or information as it deems relevant or necessary. The Board of Aldermen shall not determine the advisability of any proposed district or improvements or order the establishment of any neighborhood improvement district or take any action whatsoever until such time as the Board of Public Service files an applicable project statement as required by this section. However, in the event the Board of Public Service fails to file the statement within the time required, the Board of Aldermen may proceed to take whatever action allowed by the Act and this chapter. In the event that the Board of Public Service has already prepared and filed a preliminary project statement in accordance with Section 3.87.050, the Board of Public Service may adopt said statement as the project statement required by this section or may otherwise prepare a separate project statement as it deems necessary.

B. The Board of Aldermen shall consider the project statement as required by Subsection A of this section and may by ordinance determine the advisability of the proposed district and improvements and order that the district be established and that preliminary plans and specifications for the improvements be made. Such ordinance shall state and make findings as to the project name for the proposed district, the general nature of the improvement or improvements proposed, the estimated cost of any such improvements, the boundaries of the neighborhood improvement district to be assessed, the proposed method or methods of assessment, and shall also state that the final cost of any such improvements assessed against the property within the neighborhood improvement district and the amount of general obligation bonds issued therefor shall not, without a new election or petition, exceed the estimated cost of such improvements by more than twenty-five percent (25%).

C. The boundaries of the proposed district shall be described by metes and bounds, streets or other sufficiently specific description. The area of the neighborhood improvement district finally determined by the Board of Aldermen to be assessed may be less than, but shall not exceed, the total area comprising such district.

D. The portion of the cost of any improvement to be assessed against the property in a neighborhood improvement district shall be apportioned against such property in accordance with the benefits accruing thereto by reasons of such improvement. The cost may be assessed equally per front foot or per square foot against property within the district or by any other reasonable assessment plan determined by the Board of Aldermen which results in imposing substantially equal burdens or shares of the cost upon property similarly benefitted. The Board of Aldermen may from time to time determine and establish by ordinance reasonable general classifications and formulae for the methods of assessing the benefits.

E. After the Board of Aldermen has made the findings specified in Section 3 of the Act and this section of this chapter and plans and specifications for the proposed improvements have been prepared, the Board of Aldermen shall by ordinance order assessments to be made against each property deemed to be benefitted by any improvement based on the revised estimated cost of the improvement or, if available, the final cost thereof, and shall order a proposed assessment roll to be prepared.

F. The plans and specifications for all improvements and the proposed assessment roll shall be filed with the City Register and shall be open for public inspection. The City Register shall thereupon, at the direction of the Board of Aldermen, publish notice that an appropriate committee of the Board of Aldermen will conduct a hearing to consider the proposed district improvements and assessments. Such notice shall be published in a newspaper of general circulation at least once not more than twenty (20) days and not less than ten (10) days before the hearing and shall state the project name for the proposed district, the date, time and place of such hearing, the general nature of the improvement or improvements proposed, the revised estimated cost or, if available, the final cost of any

such improvements, the boundaries of the neighborhood improvement district to be assessed, and that written or oral objections will be considered at the hearing. The notice of hearing shall be in substantially the form established by Exhibit C to the ordinance codified in this chapter and on file in the office of the City Clerk. At the same time, the City Register shall mail to the owners of record of the property made liable to pay the assessments, at their last known post office address, a notice of the hearing and a statement of the cost proposed to be assessed against the property so owned and assessed. The failure of any owner to receive such notice shall not invalidate the proceedings.

G. The hearing to conduct the proposed improvements and assessments shall be conducted by an appropriate committee of the Board of Aldermen, and said committee shall hear any objections to the proposed improvements and assessments and shall report said objections to the Board for its consideration. The Board of Aldermen shall pass upon all objections to the proposed improvements and proposed assessments, if any, and may amend the proposed improvements, and the plans and specifications therefor, or assessments as to any property, and thereupon by ordinance the Board of Aldermen shall order that the improvement be made and direct that financing for the cost thereof be obtained as provided in the Act and this chapter. (1994 C., § 3.87.070; Ord. No. 62346, § 7, 1991.)

3.87.080 Special assessments.

A. After construction of the improvement has been completed in accordance with the plans and specifications therefor, the Board of Aldermen shall compute the final costs of the improvement and apportion the costs among the property benefitted by such improvement in such equitable manner as the Board of Aldermen shall determine, charging each parcel of property with its proportionate share of the costs, and by ordinance assess the final cost of the improvement or the amount of general obligation bonds issued or to be issued therefor as special assessments against the property described in the assessment roll.

B. After the passage or adoption of the ordinance assessing the special assessments, the City Register shall mail a notice to each property owner within the district which sets forth a description of each parcel of real property to be assessed which is owned by such owner, the special assessment assigned to such property, and a statement that the property owner may pay such assessment in full, together with interest accrued thereon from the effective date of such ordinance, on or before a specified date determined by the effective date of the ordinance, or may pay such assessment in annual installments as provided in Section 6.4 of the Act and Subsection C of this section.

C. The special assessments shall be assessed upon the property included therein concurrent with general property taxes, and shall be payable in not more than twenty (20) substantially equal annual installments, taking into account such assessments and interest thereon, as the Board of Aldermen determines. The first installment shall be payable after the first collection of general property taxes following the adoption of the assessment ordinance unless such ordinance was adopted and certified too late to permit its collection at such time. All assessments shall bear interest at such rate as the Board of Aldermen determines, not to exceed the rate permitted for bonds by RSMo 108.170. Interest on the assessment between the effective date of the ordinance assessing the assessment and the date the first installment is payable shall be added to the first installment. The interest for one (1) year on all unpaid installments shall be added to each subsequent installment until paid. All of the installments, together with the interest accrued or to accrue thereon, may be certified by the City Register in one instrument at the same time. Such certification shall be good for all of the installments, and the interest thereon payable as special assessments.

D. Special assessments shall be collected by the City's Collector of Revenue and paid over to the City Treasurer in the same manner as property taxes of the City are collected and paid.

E. No suit to set aside the special assessments made under the Act and this chapter or to otherwise question the validity of the proceedings relating thereto shall be brought after the expiration of ninety (90) days from the date of mailing of notice to property owners of the assessments required by Section 6 of the Act and Section 3.87.070 of this chapter.

F. To correct omissions, errors or mistakes in the original assessment which relate to the total cost of any improvements, the Board of Aldermen may, without a notice or hearing, make supplemental or additional assessments on property within a neighborhood improvement district, except that such supplemental or additional assessments shall not, without a new election or new petition as provided in Section 3 of the Act

and Section 3.87.060 of this chapter, exceed twenty-five percent (25%) of the estimated cost of the improvements determined pursuant to the Act and this chapter.

G. When an assessment is, for any reason whatever, set aside by a court of competent jurisdiction as to any property, or in the event the Board of Aldermen finds that the assessment or any part thereof is excessive or determines on the written advice of the City Counselor that it is or may be invalid for any reason, the Board of Aldermen may, upon notice and hearing as provided for the original assessment, make a reassessment or a new assessment as to such property.

H. A special assessment authorized under the provisions of the Act and this chapter shall be a lien, from the date of the assessment, on the property against which it is assessed on behalf of the City to the same extent as a tax upon real property.

I. After any improvement has been authorized pursuant to Section 3 of the Act and Section 3.87.070 of this chapter, the Board of Aldermen may issue temporary notes of the City to pay the costs of such improvement in an amount not to exceed the estimated cost of such improvement, and such temporary notes shall be general obligations of the City. General obligation bonds of the City shall be issued and sold as provided in Section 2 of the Act and Section 3.87.040 of this chapter to refund, retire and pay off such temporary notes and any accrued interest thereon to the date of payment.

J. A separate fund or account shall be created in the City Treasury for each neighborhood improvement district and each such fund or account shall be identified by a suitable title. The proceeds from the sale of bonds and temporary notes and other moneys appropriated thereto by the Board of Aldermen shall be credited to such funds or accounts. Such funds or accounts shall be used solely to pay the costs incurred in making each respective improvement benefitting the neighborhood improvement district. Upon completion of all improvements benefitting a district, the balance remaining in the fund or account established for such district, if any, shall be credited against the amount of the original assessment of each parcel of property, on a pro rata basis based on the amount of the original assessment, and with respect to property owners that have prepaid their assessments in accordance with Section 6 of the Act and this section of this chapter, the amount of each such credit shall be refunded to the appropriate property owner, and with respect to all other property owners, the amount of each such credit shall be transferred and credited to the City Bond and Interest Fund to be used solely to pay the principal of and interest on the bonds or temporary notes and the assessments shall be reduced accordingly by the amount of such credit.

K. The total amount of City general obligation bond indebtedness incurred for improvements under the Act and this chapter, including temporary notes issued pursuant to the Act and this chapter, shall not exceed ten percent (10%) of the assessed valuation of all taxable tangible property, as shown by the last completed property assessment for state or local purposes, within the City. (1994 C., § 3.87.080; Ord. No. 62346, § 8, 1991.)

3.87.090 Nondiscrimination and disadvantaged business enterprises participation.

A. Any contract or subcontract for the construction of any improvement benefitting a neighborhood improvement district awarded by the City shall include a warranty that the successful contractor will not exclude or discriminate against any person solely because of race, color or creed, or for any reason not sanctioned by law and not applicable alike to persons generally.

B. All specifications and contracts approved and awarded by the City or any of its departments or agencies shall provide for compliance with the Mayor's Executive Order on Equal Opportunity (see Appendix B attached to the ordinance codified in this chapter and on file in the office of the City Clerk) and judicial decisions relating to the subject of participation of disadvantaged business enterprises, including, but not limited to, St. Louis Minority Contractors Association v. City of St. Louis, No. 88-1587 (4) (E.D. Mo., 1990) (see Appendix C attached to the ordinance codified in this chapter and on file in the office of the City Clerk), except when otherwise superseded or prohibited by federal or state regulations or the Charter of the City. (1994 C., § 3.87.090; Ord. No. 62346, § 9, 1991.)

Chapter 3.88

ST. LOUIS TRANSITION CENTER FOR THE HOMELESS

Sections:

3.88.010	**Established.**
3.88.020	**Facilities requirements.**
3.88.030	**Management contract—Cost limit.**

3.88.040 Management contract—Requirements.

3.88.010 Established.

There is hereby established the St. Louis Transition Center for the Homeless. (1994 C., § 3.88.010; Ord. No. 60019, § 1, 1986.)

3.88.020 Facilities requirements.

Within thirty (30) days of the adoption of this chapter the City of St. Louis shall provide facilities approved by the Board of Aldermen for single homeless men and single women and women with children which will accommodate a minimum of two hundred (200) persons; and facilities approved by the Board of Aldermen which will accommodate a minimum of fifty (50) families.

A. Construction and/or rehabilitation of said facilities shall commence within sixty (60) days after adoption of this chapter.

B. Construction of said facilities shall be completed within ninety (90) days after it has commenced. (1994 C., § 3.88.020; Ord. No. 60019, § 2, 1986.)

3.88.030 Management contract—Cost limit.

Within thirty (30) days of the adoption of this chapter the Board of Estimate and Apportionment shall enter into a contract or contracts approved by the Board of Aldermen with an existing agency or agencies that specializes in caring for homeless individuals and families to manage the St. Louis Transition Center for the Homeless. The cost of purchasing the facility and operation during FY 86-87 shall not exceed three hundred eighty thousand dollars ($380,000.00) (1994 C., § 3.88.030; Ord. No. 60019, § 3, 1986.)

3.88.040 Management contract—Requirements.

Said contract shall include, but not be limited to, the following services to the agency which will manage the St. Louis Transition Center for the Homeless:

A. Health Clinic Care;

B. Mental Health Care;

C. SLATE Services;

D. Day Care Services;

E. Drug & Alcohol Abuse Care;

F. Emergency Placement Funds;

G. 2-15 Passenger Van. (1994 C., § 3.88.040; Ord. No. 60019, § 4, 1986.)

Chapter 3.90

FIRST SOURCE JOBS POLICY

Sections:

3.90.010 Definitions.
3.90.020 First source register created.
3.90.030 Employment agreement required.
3.90.040 Reports.
3.90.050 Enforceability.
3.90.060 Severability.

3.90.010 Definitions.

For the purposes of this chapter the term:

A. "Beneficiary" means:

1. The recipient of any Industrial Revenue Bonds, tax abatement, Urban Development Action Grants, Small Business Administration Loan, or Community Development Block Grant funds from the City or from agencies substantially controlled by the City including the Planned Industrial Expansion Authority, the Land Clearance for Redevelopment Authority, the Industrial Development Agency, the Community Development Agency, and the Local Development Company;

2. The "anchor" tenant of any development benefiting from St. Louis City government funds as described in Subsection A of this section, or any tenant or lessee of such a development that has thirty (30) or more total employees at that site;

3. The terms and conditions created by this chapter shall not be binding on individuals, partnerships, or corporation during the construction of any facility relating to a government-assisted project, or for the temporary construction jobs on a completed facility.

B. "Employment agreement" means a contract executed by the City and the beneficiary which details the number and description of each "entry-level" job for which the beneficiary is required to use the first source register.

C. "Entry-level job" means any non-managerial, non-professional, or non-technical position, for which little or no prior work experience or vocational skill training is required to successfully perform the job tasks.

D. "First source register" means a listing of low-income City residents.

E. "Government-assisted project" means any project funded in whole or in part with St. Louis City funds as described in Subsection A of this section.

F. "Low income City resident" means: Any City resident who is eligible for Job Training Partnership Act (JTPA) services under Public Law 97-300, which includes any recipient of food stamps, any member of a household with a family income at or below the poverty level as defined by the Federal Office of Management and Budget (OMB), or any one with a major barrier to employment such as the handicapped, veterans, teenage parents, high school dropouts, dislocated (laid off) workers, older workers, and ex-offenders. Such individuals must be at least seventeen and one-half (17½) years old and not currently enrolled in secondary school. (1994 C., § 3.90.010; Ord. No. 60275, § 1, 1987.)

3.90.020 First source register created.

A. The St. Louis Agency on Training and Employment (SLATE) shall compile and maintain a first source register.

B. In compiling and maintaining the first source register, SLATE shall contact community organizations, civic and citizen associations for names of low-income City residents. As budget and staffing permit, SLATE is hereby authorized to periodically place staff at a wide variety of locations as it shall be predetermined, e.g., public health centers, food stores, temporary office, police stations, schools, churches, etc., for purposes of updating lists of low-income City residents. (1994 C., § 3.90.020; Ord. No. 60275, § 2, 1987.)

3.90.030 Employment agreement required.

The City shall include for every government-assisted project a requirement that the beneficiary enter into an employment agreement with SLATE:

A. The first source for finding employees to fill all entry-level jobs created by the government-assisted project will be the first source register. The goal of each employment agreement will be that one hundred percent (100%) of entry-level jobs will be hired from the first source register, with sixty percent (60%) as the minimum acceptable performance. It is understood that after a reasonable time frame (established within the agreement), the employer shall be free to fill remaining entry level jobs from other sources.

B. The first source for finding employees to fill all vacancies occurring in an entry-level job covered by an employment agreement (during the term of the agreement) will be the first source register. (1994 C., § 3.90.030; Ord. No. 60275, § 3, 1987.)

3.90.040 Reports.

SLATE shall submit a report to the Board of Aldermen of the City within ten (10) working days following each calendar quarter. The report shall include, for each preceding three-month period:

A. The number of government-assisted projects for which employment agreements were executed;

B. The number of entry-level jobs covered by each employment agreement;

C. The number of low-income City residents actually employed in each government-assisted project;

D. The number of low-income City residents on the first source register. (1994 C., § 3.90.040; Ord. No. 60275, § 4, 1987.)

3.90.050 Enforceability.

A. If during the term of an employment agreement the employer should transfer possession of all or a portion of its business concerns affected by the agreement to any other part by a lease, sale, assignment, or otherwise, the employer as a condition of transfer shall inform any other party of any existing agreement. Subsequently, best efforts will be used by SLATE to negotiate a new first source agreement.

B. In those instances of an employers failure to comply with the terms of the agreement, SLATE shall issue a corrective action citation specifying all areas of noncompliance and a time limit for resolution of the identified problems. Failure to remedy said "noncompliance" issues may result in the recommendations to the appropriate operating agency for withdrawal/reduction of public incentives, the filing of a complaint with the pertinent federal agency, and/or a disbarring or denial of any future opportunities for said company to utilize City economic incentives or other appropriate actions. (1994 C., § 3.90.050; Ord. No. 60275, § 5, 1987.)

3.90.060 Severability.

In the event any provision of the chapter shall be held invalid or unenforceable by any court of competent jurisdiction, such holding shall not invalidate or render unenforceable any other provision hereof. (1994 C., § 3.90.060; Ord. No. 60275, § 6, 1987.)

Chapter 3.91

PROFESSIONAL SPORTS FACILITY

Editor's Note:

Ord. 66509 was derived from an initiative petition filed by the Coalition Against Public Funding for Stadiums.

Voter Approval Date: November 2, 2002.

Sections:

3.91.010	**Definitions.**
3.91.020	**Procedures.**
3.91.030	**Voter approval required.**

3.91.010 Definitions.

For purposes of this chapter the following definitions shall be used:

"City" means the City of St. Louis and every department, agency, commission, entity or corporation of, belonging to, created by, authorized by, or affiliated with the City of St. Louis. For example, "City" includes the Treasurer, the Comptroller, the Community Development Agency, the Planned Industrial Expansion Authority, and the Convention and Tourism Bureau.

"Development" means any aspect of development, including, without limitation, design, construction, operation, maintenance, financing, and site preparation.

"Financial assistance" means any City assistance of value, direct or indirect, whether or not channeled through an intermediary entity, including, but not limited to, tax reduction, exemption, credit, or guarantee against or deferral of increase; dedication of tax or other revenues; tax increment financing; issuance, authorization, or guarantee of bonds; purchase or procurement of land or site preparation; loans or loan guarantees; sale or donation or loan of any City resource or service; deferral, payment, assumption or guarantee of obligations, and all other forms of assistance of value.

"Governing body" means the entity which, or official who, proposes to take action to provide financial assistance to the development of a professional sports facility. For example, "governing body" includes the Board of Aldermen, the Board of Estimate and Apportionment, the Treasurer, the Comptroller, the Director of the Community Development Agency, and the Board of Commissioners of the Planned Industrial Expansion Authority.

"Professional sports facility" means any construction, building or improvement to real estate intended to accommodate regularly scheduled games of a professional sports team, provided that the term shall not include any such facility which is in existence and accommodating such games on the date of enactment of the ordinance codified in this chapter.

"Site preparation" means any work of any kind at or related to the site of a professional sports facility, including, without limitation, infrastructure such as roads, streets, parking, sewer lines, water lines and electric and gas facilities. (1994 C., § 3.91.010; Ord. No. 66509, § 1, 2004.)

3.91.020 Procedures.

Before the City can act, by ordinance or otherwise, to provide financial assistance to the development of a professional sports facility, the following procedures must be fully implemented:

A. A fiscal note must be prepared by the Comptroller, received by the governing body, and made available to the public for at least 20 days prior to final action. The fiscal note shall state the total estimated financial cost, together with a detailed estimated cost, to the City, including the value of any services, of the proposed action, and shall be supported with an affidavit by the Comptroller that the Comptroller believes the estimate is reasonably accurate.

B. A public hearing must be held by the governing body allowing reasonable opportunity for both proponents and opponents to be heard. Notice of the hearing shall be published three consecutive times in two newspapers of general circulation, not less than ten days before the hearing. (1994 C., § 3.91.020; Ord. No. 66509, § 2, 2004.)

3.91.030 Voter approval required.

No financial assistance may be provided by or on behalf of the City to the development of a professional sports facility without the approval of a majority of the qualified voters of the City voting thereon. Such voter approval shall be a condition precedent to the provisions of such financial assistance. (1994 C., § 3.91.030; Ord. No. 66509, § 3, 2004.)

Chapter 3.92

MEMORANDUMS OF UNDERSTANDING

Sections:

3.92.010	**Policy declaration.**
3.92.020	**Definitions.**
3.92.030	**Exclusive bargaining representative—Recognition.**
3.92.040	**Exclusive bargaining representative—Decertification.**
3.92.050	**Exclusive bargaining representative—Duty to act fairly.**

3.92.060 Employees not to be discriminated against.
3.92.070 Bargaining procedure.
3.92.080 Information to be made available.
3.92.090 Fair share agreement.
3.92.100 Grievance adjustment.
3.92.110 Work slowdown or strike prohibited.
3.92.120 Change in memorandum of understanding.

3.92.010 Policy declaration.

It is hereby declared to be the policy of the City to encourage the practice and procedure of good faith negotiation of memorandums of understanding and fair share agreements for public employees of the City covering proposals relative to salaries and other conditions of their employment, as set forth herein below, to the fullest extent permitted by law, especially RSMo 105.500 et seq.), and the Charter and ordinances of the City. (1994 C., § 3.92.010; Ord. No. 62234, § 1, 1991.)

Cases:

The Missouri constitutional right to join labor organizations and bargain collectively is applicable to public employees, and governmental entities can enter into enforceable collective bargaining agreements—but such entities are not required to agree to anything. *Independence-NEA v. Independence Sch. Dist.,* 223 S.W.3d 131 (Mo.banc 2007).

3.92.020 Definitions.

Unless the context otherwise requires, the following words and phrases means:

A. "Appropriate unit" means a unit of employees at any plant, or installation, or facility, or in a craft or in a function of the City which establishes a clear and identifiable community of interest among the employees concerned.

B. "Exclusive bargaining representative" means a labor organization which has been designated or selected by a majority of employees in an appropriate unit as the representative of such employees in such unit for purposes of collective bargaining.

C. "City" means the City of St. Louis.

D. "Memorandum of understanding" means a written agreement between the City and an exclusive bargaining representative covering proposals relative to salaries and other conditions of employment.

E. "Fair share agreement" means a written agreement between the City and an exclusive bargaining representative, which may be contained in a memorandum of understanding, under which all or any of the employees in an appropriate bargaining unit are required to pay their proportionate share of the costs of the bargaining process, memorandum of understanding, administration, and pursuit of other matters affecting salaries and other conditions of employment of employees in the appropriate unit, but not to exceed the amount of dues uniformly required of members.

F. "Labor organization" means any organization in which employees participate which exists, in whole or in part, for the purpose of dealing with the City of St. Louis concerning salaries and other conditions of employment. (1994 C., § 3.92.020; Ord. No. 62234, § 2, 1991.)

3.92.030 Exclusive bargaining representative—Recognition.

A labor organization may be recognized as an exclusive bargaining representative if the City has sufficient evidence of the majority status of the labor organization in an appropriate unit. Disputes concerning majority status in the appropriate unit will be determined by the State Board of Mediation. (1994 C., § 3.92.030; Ord. No. 62234, § 3, 1991.)

3.92.040 Exclusive bargaining representative—Decertification.

All exclusive bargaining representatives, either recognized by the City or certified by the State Board of Mediation, shall be presumed to have continued majority status until they are decertified or until they make a disclaimer of interest in continued representation of the employees in the appropriate unit. (1994 C., § 3.92.040; Ord. No. 62234, § 4, 1991.)

3.92.050 Exclusive bargaining representative—Duty to act fairly.

All exclusive bargaining representatives, either recognized by the City or certified by the State Board of Mediation, shall represent fairly and without discrimination all public employees in the appropriate units without regard to labor organization membership. (1994 C., § 3.92.050; Ord. No. 62234, § 5, 1991.)

3.92.060 Employees not to be discriminated against.

Employees covered by memorandums of understanding shall not be deprived of any protection granted by federal, state and City law. Employees shall not be discriminated against because of race, creed, national origin, religion, sex, marital status, age or labor organization activity or membership, in accordance with

applicable federal, state and City law. (1994 C., § 3.92.060; Ord. No. 62234, § 6, 1991.)

3.92.070 Bargaining procedure.

A. In the process of meeting, conferring, and discussing in good faith salaries and other conditions of employment of City employees, the Director of Personnel and the exclusive bargaining representative shall engage in discussions for the purpose of reducing the results of the bargaining process to a written memorandum of understanding.

B. All of the terms agreed upon between the City and the exclusive bargaining representative shall meet the requirements of federal, state and City law and shall be included in written memorandums of understanding to be submitted to the Board of Aldermen for ratification and adoption in form or ordinances. A memorandum of understanding shall include a nondiscrimination clause in accordance with Sections 3.92.050 and 3.92.060. If arbitration is permitted by state law, a provision for arbitration may be included in a memorandum of understanding.

C. In the case of negotiations for a new memorandum of understanding, either party may seek negotiations of the agreement one hundred eighty (180) days prior to the expiration date of the current memorandum of understanding. The Director of Personnel of the City and the exclusive bargaining representative shall make themselves available at reasonable times and places for good faith conferences.

D. If negotiation fails to result in a memorandum of understanding acceptable to the exclusive bargaining representative, then the Director of Personnel and the Civil Service Commission shall proceed pursuant to their authority under the Charter and ordinances of the City. (1994 C., § 3.92.070; Ord. No. 62234, § 7, 1991.)

3.92.080 Information to be made available.

During negotiations and during the term of a memorandum of understanding, each party shall make available information requested by the other party reasonably related and necessary or useful for negotiations and/or administration of the memorandum of understanding unless said disclosure is prohibited by law. (1994 C., § 3.92.080; Ord. No. 62234, § 8, 1991.)

3.92.090 Fair share agreement.

A. The parties may agree to a fair share agreement at any time after majority status has been recognized or certified, and such an agreement may be included in a memorandum of understanding.

B. The fees agreed upon in a fair share agreement shall be those which are necessary or reasonably incurred for the purpose of performing the duties of exclusive bargaining representative. The amounts shall not include any fees for contributions related to the election or support of any candidate for political office.

C. Employees shall be advised, before a fair share agreement is implemented, of the manner in which the fair share fee has been calculated. No fair share fee shall be withheld from an employee's salary if the employee files an objection to the withholding until the objection is resolved. The Civil Service Commission shall hold a prompt hearing to resolve any disputes over objections by employees.

D. No fair share agreement between the City and an exclusive bargaining representative will be agreed upon for any bargaining unit, where the City has previously recognized the role of an organization having a primary purpose the prevention or elimination of racial discrimination in a bargaining unit, until the exclusive bargaining representative and the other organization have had the opportunity to meet and agree on the proper proportionate share of costs to be included in the fair share agreement. (1994 C., § 3.92.090; Ord. No. 62234, § 9, 1991.)

> Compulsory payment of union dues or fees in public sector collective bargaining contravened First Amendment rights of nonconsenting employees, *Janus v. AFSCME, Council 31*, 138 S.Ct. 2448 (2018).

3.92.100 Grievance adjustment.

An employee covered by a memorandum of understanding has the right to present a grievance arising under the terms of a memorandum of understanding and notwithstanding the provisions of Section 3.92.050, to have the grievance adjusted without the intervention of the exclusive bargaining representative. The City has the duty to hear the grievance and participate in its adjustment. The adjustment may not be inconsistent with the terms of the memorandum of understanding agreement. The exclusive bargaining representative shall be given prompt notice of the grievance and shall have the privilege of attending any hearings, and shall be notified of the adjustment thereon. The City and the exclusive bargaining representative shall not interfere with, intimidate, restrain, coerce or discriminate against an employee because of the exercise of such rights. Nothing in the chapter will be construed to limit the right of the City to discuss civil rights issues with any

individual or group of individuals. (1994 C., § 3.92.100; Ord. No. 62234, § 10, 1991.)

3.92.110 Work slowdown or strike prohibited.

Nothing contained herein shall be construed as granting a right to employees to engage in a work slowdown, work disruption or strike. (1994 C., § 3.92.110; Ord. No. 62234, § 11, 1991.)

3.92.120 Change in memorandum of understanding.

A memorandum of understanding ratified and adopted by ordinance shall be subject to change during the term of the agreement only by another ordinance adopted making such change. (1994 C., § 3.92.120; Ord. No. 62234, § 12, 1991.)

Chapter 3.94

TRANSFER OF AGREEMENTS

Sections:

3.94.010 Prior consent from approving authority required.

3.94.020 Proposed assignment to be approved by same approving authority as original agreement.

3.94.030 Approval to be based on best interests of City.

3.94.040 Violation—Declaration of agreement as null and void.

3.94.050 Applicability.

3.94.010 Prior consent from approving authority required.

No contract, lease or other agreement, or interest therein, to which the City is a party shall be assigned or otherwise transferred by any other party to such contract, lease or agreement without the prior consent from the appropriate approving authority of the City of St. Louis in the manner described in Section 3.94.020 of this chapter. (1994 C., § 3.94.010; Ord. No. 63687, § 1, 1996.)

3.94.020 Proposed assignment to be approved by same approving authority as original agreement.

In cases where an assignment or other transfer of a contract, lease or other agreement, or interest therein, is proposed ("Proposed Assignment"), the Proposed Assignment must be approved by the same approving authority for the City of St. Louis as required for the approval of the original contract, lease or other agreement. (1994 C., § 3.94.020; Ord. No. 63687, § 2, 1996.)

3.94.030 Approval to be based on best interests of City.

In considering a Proposed Assignment, the appropriate approving authority for the City of St. Louis shall base its decision upon whether the best interests of the City and the City's residents would be served by the Proposed Assignment. (1994 C., § 3.94.030; Ord. No. 63687, § 3, 1996.)

3.94.040 Violation—Declaration of agreement as null and void.

In the event a party to a contract, lease, or other agreement, to which the City is also a party, assigns or transfers said party's interest in said contract, lease, or other agreement in violation of the terms of this chapter, then the City shall be entitled, at its discretion, to declare said contract, lease, or other agreement null and void. Failure of the City to exercise its discretion to declare a contract, lease or other agreement null and void after it is assigned or transferred in violation of this chapter shall not constitute a waiver by the City of its right to subsequently declare said contract, lease or other agreement null and void. (1994 C., § 3.94.040; Ord. No. 63687, § 4, 1996.)

3.94.050 Applicability.

The terms, requirements and proscriptions of this chapter shall apply to all contracts, leases and other agreements, or interests therein, existing at the time the ordinance codified in this chapter is enacted or anytime thereafter. However, nothing in this chapter shall modify the express terms of any contract, lease or other agreement already existing at the time said ordinance is enacted which provide a specific procedure for assignment or transfer. For purposes of this chapter, general references to successors or assigns in an existing contract, lease or other agreement shall not be construed to create a right to assign or transfer unless any such contract, lease or other agreement also contains specific procedures and terms governing how such assignments or transfers may occur. (1994 C., § 3.94.050; Ord. No. 63687, § 5, 1996.)

Chapter 3.96

FOREST PARK ADVISORY BOARD

See Ordinance 63769 for complete text. This chapter has been edited for codification purposes.

Sections:

3.96.010	**Established.**
3.96.020	**Membership—Terms of members.**
3.96.030	**Appointments subject to approval of the Board.**
3.96.040	**Authority and responsibilities.**
3.96.050	**Applicability of City Charter Art. VIII, Section 12.**

3.96.010 Established.

There is hereby established a Forest Park Advisory Board. (1994 C., § 3.96.010; Ord. No. 63769, § 1, 1996.)

3.96.020 Membership—Terms of members.

The membership and terms of office of members of the Forest Park Advisory Board shall be as follows:

A. The following members shall be appointed by the Mayor, subject to the approval of the Board of Aldermen:

1. One selected from among persons nominated by community groups or neighborhood organizations in neighborhoods adjacent to Forest Park;

2. On selected from among persons nominated by subdistricts or governing boards of institutions of the Metropolitan Zoological Park and Museum District with facilities located in Forest Park and The Muny;

3. One selected from among persons nominated by organizations which use or whose members use a portion of Forest Park on an ongoing basis for amateur sports activities pursuant to permits issued by the Board of Public Service or the Department of Parks, Recreation and Forestry;

4. One selected from among persons nominated by persons, organizations or other entities which are not described in Subsection A.1, 2 or 3 with a lease or permit from, or contract with, the City or the Department of Parks, Recreation and Forestry, for ongoing use of a portion of Forest Park;

5. One selected from among persons nominated by environmental advocacy groups active in the metropolitan area;

6. One member with expertise in landscape architecture;

7. One member with expertise in urban design;

8. One member with expertise in ecology and natural resources;

9. Seven members at large reflecting the geographic, racial and ethnic, and gender diversity of the City; and

10. In addition to the foregoing members, up to five nonvoting advisory members who are not residents of the City.

B. The following members shall serve ex officio:

1. The Forest Park Manager;

2. The Executive Director of Forest Park Forever, Inc., or his or her designee;

3. The Aldermen of any ward in which any part of Forest Park is located, or his or her designee;

4. The Chair of the Parks Committee of the Board of Aldermen, or his or her designee;

5. One of the following as determined by the Mayor:

a. The Director of Planning of the Community Development Agency; or

b. The Commissioner of Heritage and Urban Design or

c. The Director of Urban Design of St. Louis Development Corporation or

d. The President of the Board of Public Service.

C. The terms of all the ex officio members shall respond to their respective official terms. Of the fifteen voting members appointed by the Mayor, three shall be appointed initially for terms of one year, three for terms of two years, four for terms of three years and five for terms of four years. Nonvoting advisory members shall be appointed for terms of four years. All members thereafter shall be appointed for terms of four years. No member appointed by the Mayor shall be an officer or employee of the City or of any political subdivision thereof other than the Metropolitan Zoological Park and Museum District or any of its subdistricts. All members, other than the nonvoting advisory members, if any, shall have one vote on the Board. (1994 C., § 3.96.020; Ord. No. 63769, § 2, Exh. A, 1996.)

3.96.030 Appointments subject to approval of the Board.

The appointments of members of the Forest Park Advisory Board by the Mayor, other than ex officio members, shall be subject to the approval of the Board of Aldermen by resolution. (1994 C., § 3.96.030; Ord. No. 63769, § 3, 1996.)

3.96.040 Authority and responsibilities.

The Forest Park Advisory Board shall have the authority and responsibilities set forth as follows:

A. Monitor the implementation of the Master Plan and provide ongoing community input about Forest Park. "Master Plan" as used herein means a Revised Forest Park Master Plan as approved by the Community Development Commission including "Forest Park Master Plan, Goals and Policies" ("Goals and Policies") as approved by resolution of the Board of Aldermen.

B. Oversee and review compliance with the Master Plan and provide review of significant modifications to the Plan, including those made by tenants, outside agencies and the Parks Department.

C. Constitute a part of the public review process for major park projects as specified by the "Project Approval Process" schematic diagrams for privately funded projects and City funded projects, copies of which are attached to the ordinance codified in this chapter as Exhibits A and B of Exhibit B, in addition to the public entities listed in Section 2.3.2 of Goals and Policies.

D. Conduct a public review of any proposed expansion, modification, replacement, relocation, adaptive re-use, or removal of existing buildings, roads, parking lots, paths, recreation areas or natural areas ("Proposed Physical Changes"). No City board (including, but not limited to, the Boards of Estimate and Apportionment, Aldermen and Public Service), commission, agency, or department shall take any action upon any proposed ordinance, contract, permit, appropriation, or other form of authorization of a Proposed Physical Change, until a public review has been conducted. Such public reviews shall be conducted within thirty days after they are initiated. The Forest Park Board (the "Board") may initiate a public review by written notice to the Director of Parks, Recreation and Forestry (the "Director") that it is doing so. The Director may initiate a public review by written notice to the Board to conduct a public review including full particulars concerning the Proposed Physical Change. In conducting such review, the Board may provide opportunities for citizen involvement and public input as it deems necessary. After completing such review, the Board shall promptly report to the Mayor, the Director, and the public whether the Board finds:

1. The Proposed Physical Change is significant or minor;

2. The Proposed Physical Change is consistent or inconsistent with the Master Plan, or is not addressed by the Master Plan; and

3. If the Proposed Physical Change is not addressed by the Master Plan, whether the Board considers the Proposed Physical Change beneficial to the Park, or not beneficial to the Park, with stated reasons.

The Board in its reports may address such other matters or findings as it believes will assist the public to evaluate the proposals which are reported on.

E. Encourage institutions and park facilities to develop their long-range plans and to present them to the Board on a regular basis.

F. Keep the public informed and advised of matters relating to the Master Plan.

G. Perform such other functions and take such other actions as are consistent with its responsibilities and authority as stated in Subsections A to F of this section, inclusive.

H. The Board is not authorized and shall not have power to amend or change the Master Plan. The Board may recommend changes to the Master Plan for consideration by the Community Development Commission.

I. The Board is authorized to reasonably request of, and shall receive from, the Director, meeting space, clerical assistance from time to time, and supplies. The Director's obligation to comply with such requests is subject to departmental budgetary limitations as determined by him in good faith.

J. The Director shall on an ongoing basis provide to the Board, with or without request from the Board, information necessary and appropriate for the Board to consider in carrying out its responsibilities under Subsections A to G of this section, inclusive. The Board shall receive from the Director any public reports prepared or received by department personnel relating to or concerning Forest Park.

K. The Board may request and upon such request shall promptly receive information from the Director concerning plans of the City affecting Forest Park.

L. The Board shall meet at least once in each calendar quarter after public notice as required by law and as determined by the Board.

M. The Board shall select officers and adopt rules for the conduct of its business, consistent with any applicable law, including, but not limited to, RSMo Ch. 610 and 105.452 (1994) as amended. The Board may adopt rules and procedures, consistent with applicable

law, which it believes appropriate concerning records of communications to Board members and disqualification of members from voting on matters originated by the group, organization, institution, person, or entity which nominated them, or, in the case of ex officio members other than Aldermen, the organization or City office in which they are employed.

N. The Board shall prepare and publish by March 31 each year a report of its proceedings and business during the preceding calendar year. (1994 C., § 3.96.040; Ord. No. 63769, § 4, Exh. B, 1996.)

3.96.050 Applicability of City Charter Art. VIII, Section 12.

The requirement of Article VIII Section 12 of the City Charter, that all City officers not excepted by such section or by ordinance devote full time to their duties of their office, shall not be applicable to the members of the Forest Park Advisory Board. (1994 C., § 3.96.050; Ord. No. 63769, § 5, 1996.)

Chapter 3.97

PROFESSIONAL SERVICE CONTRACTS

Sections:

3.97.010 Authority to enter into contracts.

3.97.020 Committee—Recommendation and approval.

3.97.030 Committee—Members—Disclosure.

3.97.040 Names and addresses of entities awarded contracts.

3.97.050 Selection process for contracts.

3.97.060 Violation.

3.97.070 Applicability.

3.97.010 Authority to enter into contracts.

Notwithstanding any ordinance to the contrary, the office of the Mayor, the office of the Comptroller, the Board of Aldermen, the Director of the St. Louis Development Agency, or of any subdivision thereof, or the director of any department, division, authority or agency of the City of St. Louis or any person acting in the capacity of the director of any department, division, authority or agency of the City of St. Louis is authorized to contract with or otherwise engage individuals, partnerships or corporations for the purpose of providing professional services, including, but not limited to, services provided by consultants, attorneys and legal advisors, medical personnel, veterinarians, collection agencies, accountants, financial advisors, bond counsel, underwriters and underwriters counsel, which are related to the operation of said office, department, division, authority or agency and which are entered into according to the procedure authorized and set forth in this chapter. (1994 C., § 3.97.010; Ord. No. 64102, § 1, 1997.)

3.97.020 Committee—Recommendation and approval.

Every professional service contract authorized by Section 3.97.010 in excess of five thousand dollars ($5,000.00) and every professional service contract in which the fee to be paid to the contractor is based upon a contingency agreed to by the parties shall be approved and recommended by a committee consisting of (1) the director of the department, division or agency seeking the contract or the designee of said director, who shall act as chairman of the committee; (2) one member of the staff of said department, division or agency selected by the director; (3) one current employee of the City selected by the Mayor; (4) one current employee of the City selected by the Comptroller; and (5) one current employee of the City selected by the President of the Board of Aldermen. Each member of the committee shall be a voting member. (1994 C., § 3.97.020; Ord. No. 65109, § 1, 2000; Ord. No. 64102, § 2, 1997.)

3.97.030 Committee—Members—Disclosure.

Before voting as a member of the committee each member shall submit to the committee chairman a statement of personal or private interest which shall disclose any ownership by the individual or the individual's spouse, children, children's spouse, parents, siblings or siblings' spouse whether singularly or collectively, directly or indirectly of any business entity under consideration by the committee; or the receipt of a salary, gratuity or other compensation or remuneration during the three years prior to the date of the committee selection meeting by the individual or the individual's spouse, children, children's spouse, parents, siblings or siblings' spouse whether singularly or collectively, directly or indirectly from any business entity under consideration by the committee. All disclosure statements shall be made a part of the record of the committee's selection process which shall be maintained by the department seeking the contract. (1994 C., § 3.97.030; Ord. No. 64102, § 3, 1997.)

3.97.040 Names and addresses of entities awarded contracts.

The committee chairman shall provide to the office of the Collector of Revenue, the office of the License Collector, the Assessor and the office of the Comptroller the name and address of every individual, partnership or corporation awarded a contract under the provisions of this chapter. (1994 C., § 3.97.040; Ord. No. 64102, § 4, 1997.)

3.97.050 Selection process for contracts.

The selection process for any professional service contract under the provisions of this chapter shall be governed by the rules and regulations adopted and promulgated by the Board of Public Service for the selection of professional service providers. (1994 C., § 3.97.050; Ord. No. 64102, § 5, 1997.)

3.97.060 Violation.

Any contract for professional services entered into in violation of this chapter shall be null and void. (1994 C., § 3.97.060; Ord. No. 64102, § 6, 1997.)

3.97.070 Applicability.

The provisions of this chapter shall not apply to the selection of professional services contracts by the Board of Public Service for public works and improvements. (1994 C., § 3.97.070; Ord. No. 64102, § 7, 1997.)

Chapter 3.98

PROFESSIONAL SERVICE AGREEMENTS

Sections:

3.98.010 Authority to enter into contracts.

3.98.020 Committee—Recommendation and approval.

3.98.030 Committee—Members—Disclosure.

3.98.040 Names and addresses of entities awarded contracts.

3.98.050 Selection process—Rules and regulations.

3.98.060 Violation.

3.98.010 Authority to enter into contracts.

The President of the Board of Public Service is authorized to enter into contracts for professional services (PSAs) related to public works improvement. (1994 C., § 3.98.010; Ord. No. 64103, § 1, 1997.)

3.98.020 Committee—Recommendation and approval.

Every Professional Service Agreement for public works improvements shall be approved and recommended by a committee consisting of (1) the President of the Board of Public Service or the President's designee; (2) one other member of the President's staff selected by the President; (3) the head of the department under whose jurisdiction lies the proposed project, or his or her designee; (4) one member of that department's staff, selected by that department head; and (5) one person selected by the President of the Board of Public Service from a list of current employees of the City of St. Louis who are qualified in the profession for which the contract is sought. Each member of the committee shall be a voting member. (1994 C., § 3.98.020; Ord. No. 64103, § 2, 1997.)

3.98.030 Committee—Members—Disclosure.

Before voting as a member of the committee each member shall submit to the President of the Board of Public Service a statement of personal or private interest which shall disclose any ownership by the individual or the individual's spouse, children, children's spouse, parents, siblings, or siblings' spouse whether singularly or collectively, directly or indirectly of any business entity under consideration by the committee; or the receipt of a salary, gratuity, or other compensation or remuneration during the three years prior to the date of the committee selection meeting by the individual or the individual's spouse, children, children's spouse, parents, siblings or siblings' spouse whether singularly or collectively, directly or indirectly from any business entity under consideration by the committee. All disclosure statements shall be made a part of the record of the committee's selection process which shall be maintained by the department seeking the contract. (1994 C., § 3.98.030; Ord. No. 64103, § 3, 1997.)

3.98.040 Names and addresses of entities awarded contracts.

The President of the Board of Public Service shall provide to the office of the Collector of Revenue, the office of the License Collector, the Assessor and the office of the Comptroller the name and address of every individual, partnership or corporation awarded a contract under the provisions of this chapter. (1994 C., § 3.98.040; Ord. No. 64103, § 4, 1997.)

3.98.050 Selection process—Rules and regulations.

The Board of Public Service is authorized to adopt rules and regulations consistent with this chapter to provide for the selection process of professional service providers. (1994 C., § 3.98.050; Ord. No. 64103, § 5, 1997.)

3.98.060 Violation.

Any contract for professional services entered into in violation of this chapter shall be null and void. (1994 C., § 3.98.060; Ord. No. 64103, § 6, 1997.)

Chapter 3.99

LIVING WAGE

Prior ordinance history: Ord. 65045

Sections:

3.99.010 Definitions and applicability.

3.99.020 Living wage and other requirements.

3.99.030 Implementation and enforcement.

3.99.040 Posting.

3.99.010 Definitions and applicability.

A. This chapter applies to any individual, proprietorship, partnership, corporation, trust, association or other entity that is a Contractor or City Financial Assistance Recipient (CFAR), as defined:

1. A contractor is a party to a contract with the City of St. Louis and/or a City Agency that is entered into after the effective date of the provisions of this chapter and that is primarily for the furnishing of services, provided that contracts for the purchase or lease of goods, public works contracts for construction, contracts for the provision of goods and services by utilities subject to federal and/or state regulatory oversight and their affiliates, the provision of health, workers compensation and other benefits to employees of the City of St. Louis and contracts for the provision of medical services to inmates of City correctional facilities and incarcerated persons under the control of City public safety agencies shall not constitute the furnishing of services for purposes of this chapter, and where the total value of such contract(s) is $50,000.00 or more in a twelve-month period. Utilities shall include, but not be limited to, electric, gas, sewer, telecommunications, water and similar services. Where during any twelve-month period an entity receives more than one contract from the City for the provision of the same or similar services, the value of the contracts shall be aggregated to determine whether this threshold is met. Any subcontractor that assists a contractor in furnishing the services that are the subject of such a contract shall be deemed a contractor for the purposes of this definition. An entity that receives or enters into one or more contracts triggering coverage under this definition shall be deemed a contractor for the duration of the contracts.

2. This definition of contractor shall include any party to a written agreement (including, without limitation, any lease, concession, franchise or easement agreement) with the St. Louis Airport Commission, the City of St. Louis and/or a City Agency that is entered into after the effective date of the provisions of this chapter, that is for the use of real property that is under the jurisdiction of the St. Louis Airport Commission, and where the total value of such agreement (including all lease or concession payments and other payments made) over a twelve-month period is $50,000.00 or more, regardless whether such value accrues to the benefit of the party or to the City of St. Louis as in the case of a lease or concession agreement. This definition of contractor shall also include (a) any party to a sublease or other agreement with a contractor allowing the party the use of real property that is under the jurisdiction of the St. Louis Airport Commission, or (b) any party to a subcontract or contract with a contractor to perform services on property that is under the jurisdiction of the St. Louis Airport Commission. The provisions of this section shall not apply to any lease between the City or the Airport Commission and any regional, national or international airline.

3. A City Financial Assistance Recipient (CFAR) is a recipient of any financial assistance from the City of St. Louis and/or a City Agency awarded after the effective date of the provisions of this chapter that has a present value of at least $20,000,000.00 over the term of the assistance, and where the primary purpose of the assistance is economic development or job growth. Financial assistance includes any financial assistance administered by the City or a City Agency including any federal grant program, tax increment financing, revenue bond financing, tax abatements, tax credits, grants, loans or any other form of financial assistance. Where an entity receives more than one award of City financial assistance within a twelve-month period, the value of the financial assistance awards shall be aggregated to determine whether this threshold is met. Any

contractor, subcontractor, tenant or concessionaire of a CFAR that employs persons at a CFAR's subsidized site and that benefits significantly from the City-awarded financial assistance shall be deemed a CFAR for the purposes of this definition. Where an entity receives City financial assistance to retain or create jobs or to provide a service, and then contracts with another entity to retain or create those jobs or to provide that service, the contracting firm will be presumed to benefit significantly from City financial assistance. Where City financial assistance is awarded to support a facility intended to be occupied chiefly by a single major tenant, that tenant will be presumed to benefit significantly from the City financial assistance. Where City financial assistance is awarded to finance the construction of a stadium and/or related entertainment or retail facilities contained within the stadium, any contractor, subcontractor, tenant or concessionaire operating at the subsidized stadium or related facilities will be presumed to benefit significantly from City financial assistance in light of the unique business location and customer base that the City-financed project makes available to them. Beyond these enumerated circumstances, a contractor, subcontractor, tenant or concessionaire of a CFAR will be deemed to benefit significantly from the City-awarded financial assistance and will therefore be subject to the requirements of this chapter only where the City determines that such would be the case at the time the financial assistance is awarded and apprises the recipient CFAR of that determination. An entity that receives City financial assistance triggering coverage under this definition shall be deemed a CFAR for the period of time during which the financial assistance that triggers coverage is received or, if the financial assistance has no specified duration, for five years.

4. Notwithstanding the foregoing, a not-for-profit organization that provides social or human services for disadvantaged residents of St. Louis pursuant to a contract or with financial assistance from the City and the contractors and subcontractors of such an organization shall not be deemed a contractor or CFAR for the purposes of this chapter. "Not-for-profit organization" means a corporation having tax-exempt status under Section 501(c)(3) of the United States Internal Revenue Code and recognized under Missouri state not-for-profit law. An organization is deemed to be providing social or human services for disadvantaged residents if the primary purpose of its work is to provide in-home or agency-based services such as food, housing, health care or training to vulnerable residents such as youth, low-income, elderly, ill or disabled individuals.

B. The wage and benefits requirements of this chapter shall apply (i) to any employee of a contractor for all hours that the employee is employed performing work related to the covered contract or concession agreement (but shall include hours employed performing general overhead or administrative services related to the City contract only where such hours total at least ten (10) hours for the employee in a given week and can be clearly identified and allocated to the City contract); and (ii) to any employee of a CFAR for all hours that the employee is employed performing work in connection with any job site covered or subsidized in whole or in part by a covered award of financial assistance from the City. An employee is any person who performs work on a full-time, part-time, temporary, or seasonal basis, and includes employees, independent contractors, and contingent or contracted workers, including persons made available to work through the services of a staffing, temporary, or employment agency. The wage and benefits requirements of this chapter shall apply to those employees specified under parts (i) and (ii) of this section for the entirety of their employment, including during any necessary training period. This provision shall not apply to interns. An intern shall only be construed to mean someone who is part of a planned, structured learning experience that provides significant educational benefits and takes place in a workplace for a limited period of time; and whose duties and responsibilities significantly complement, rather than displace, the work of regular employees.

C. For purposes of this chapter, a "City Agency" shall include any agency, office, position, administration, department, division, bureau, board, commission, or other unit, affiliate, or subdivision of the City, and any other entity over which majority control is exercised by officers or employees of the City or by their appointees, or which awards contracts or financial assistance that is funded by the City. This definition shall include any Department of the City, the City of St. Louis Airport Authority, the Planned Industrial Expansion Authority, the Land Clearance for Redevelopment Authority, the Industrial Development Authority, the Community Development Agency, the Local Development Company and the St. Louis Develop-

ment Corporation. (1994 C., § 3.99.010; Ord. No. 71948, § 1, 1-29-2025; Ord. No. 65597, § 2, 2002.)

RSMo:

RSMo 290.528

Cases:

City's minimum wage ordinance was not preempted by statute enacted in violation of Missouri constitutional provision relating to dual subject legislation. *Coop. Home Care, Inc. v. City of St. Louis,* 514 S.W.3d 571 (Mo.banc 2017).

3.99.020 Living wage and other requirements.

A. Each contractor and CFAR shall pay its employees wages that are no less than a living wage as defined in this chapter or wages that are at least equal to the wages required under Chapter 6.20 of the Revised Code of the City of St. Louis, whichever is greater.

B. A living wage means an hourly wage rate which on an annual basis (based on forty hours per week, fifty-two weeks per year) is equivalent to 130% of the federal Poverty Guidelines for a family of three, as updated annually in the Federal Register by the U.S. Department of Health and Human Services, if the employee also receives health benefits from the employer. Health benefits, for the purposes of this chapter, means receipt of health care benefits for the covered employee and/or his or her dependents where the employer's contribution to the benefits package, for each hour worked, is valued at no less than the hourly prevailing fringe benefits rate defined under the City's prevailing wage law, Chapter 6.20 of the Revised Code of the City of St. Louis, as adjusted periodically. If health benefits are offered as provided by this chapter, an employee shall not have the option of choosing to higher wages in lieu of the health benefits. In determining the living wage an employer is required to pay a tipped employee, the amount paid such employee shall be an amount equal to:

1. The hourly cash wage paid such employee which for purposes of such determination shall be not less than 50% of the value of the living wage required for non-tipped employees as defined herein and adjusted annually;

2. An additional amount on account of the tips received by such employee which amount is at least equal to 50% of the value of the living wage required for non-tipped employees. The additional amount on account of tips may not exceed the value of the tips actually received by an employee. The preceding two (2) sentences shall not apply with respect to any tipped employee unless such employee has been informed by the employer of the provisions of this subsection, and all tips received by such employee have been retained by the employee, except that this subsection shall not be construed to prohibit the pooling of tips among employees who customarily and regularly receive tips.

C. If health benefits are not provided, each contractor and CFAR shall pay its covered employees a wage no less than an hourly wage equal to the sum of the living wage for employees with health benefits as defined in Subsection B of this section, plus the prevailing fringe benefits rate defined under the City's prevailing wage law, Chapter 6.20 of the Revised Code of the City of St. Louis, as adjusted periodically.

D. The City Compliance Official (CCO) shall adjust the living wage rate annually no later than April 1 to incorporate changes in the federal poverty guidelines. The CCO shall publish a bulletin announcing any change in the amount of the living wage and in the prevailing fringe benefits rate defined under the City's prevailing wage law, and shall inform each contractor and CFAR of such changes in writing prior to such adjustment becoming effective. In the event that the City ever ceases determining the prevailing fringe benefits rate currently defined under the City's prevailing wage law, the prevailing fringe benefits rate for the purposes of this chapter shall be the hourly prevailing fringe benefits rate for employees in the St. Louis metropolitan area as determined pursuant to the federal Service Contract Act, 41 U.S.C. Section 351 et seq., as amended.

E. It shall be unlawful for any employer, an employer's agent or representative, or any other party to take any action against an individual in retaliation for the exercise of rights protected under this chapter. Rights protected under this chapter shall include the freedom to inform others of their potential rights under this chapter, and to assist them in asserting those rights. This protection shall also apply to any individual who mistakenly, but in good faith, alleges noncompliance with this chapter. Taking adverse action against an individual within sixty (60) days of the individual's exercise of rights protected under this chapter shall raise a rebuttable presumption of having done so in retaliation for the exercise of those rights. Contractors and CFARs shall also be in compliance with other applicable federal, state and local labor and workplace laws.

F. No contractor or CFAR shall, directly or indirectly, use any City financial assistance or payments for the purpose of persuading employees to support or oppose unionization. In particular, financial assistance or payments received from City of St. Louis shall not be used to schedule or hold meetings related to union representation during employees' working hours. However, this restriction shall not apply to any expenditure made in the course of good faith collective bargaining, or to any expenditure pursuant to obligations incurred under a bona fide collective bargaining agreement. Where a contractor or CFAR operates on property owned or controlled by the City then, in order to ensure that publicly owned or controlled space is used in a viewpoint-neutral fashion, a labor union shall be allowed the same opportunity to communicate with employees as is enjoyed by the contractor or CFAR, including the right to have access to the premises, post notices, distribute literature, and use the premises to hold meetings with employees.

G. All of the provisions of this chapter, or any part hereof, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms. (1994 C., § 3.99.020; Ord. No. 65597, § 3, 2002.)

3.99.030 Implementation and enforcement.

A. The provisions of this chapter shall augment the City's normal and customary procedure for administering its contracts and economic development assistance programs. The Mayor shall designate a City Compliance Official (CCO) as the City agency and/or individual with primary responsibility for administering, implementing and enforcing this chapter, including coordinating and ensuring effective compliance by all City-affiliated agencies, provided that the CCO shall not be the St. Louis Development Corporation. The CCO shall promulgate implementing rules, regulations, forms, bid and contract provisions, and other materials, as appropriate, consistent with this chapter, which shall be binding on City agencies, contractors, CFARs, employees, and all other parties affected by this chapter. Subject to the requirements of this chapter, the rules and regulations shall establish procedures for monitoring the operations of contractors and CFARs, and their covered subcontractors and tenants, to ensure compliance with this chapter, and shall establish procedures for regular review of payroll records and investigation and resolution of specific concerns or complaints about the employment practices of contractors and CFARs, and their covered subcontractors and tenants. The rules and regulations shall require contractors, CFARs and their covered subcontractors and tenants to submit reports to the City at least annually identifying: their covered employees and the wages and benefits that they are paid; and the number of employees based at the site that is performing the service contract or receiving the financial assistance that are paid less than the living wage and a brief explanation of why they are believed not to be covered by this chapter. Where the CCO deems appropriate or necessary, the implementing rules and regulations may include interpretive or legislative rules and regulations that explain and clarify the substantive requirements of this chapter. Implementing rules, regulations, forms, bid and contract provisions, and other materials promulgated by the CCO shall be subject to public hearing, and to review and comment by the Board of Aldermen, before they take effect. Upon receipt of said materials, the Board of Aldermen shall have sixty (60) days to make such review and comment. Where the CCO deems appropriate, and to the extent permitted by law, the CCO may assign its authority over any particular implementation function to another body, agency, or individual. Such rules or regulations shall have the force and effect of law and may be relied on by contractors and CFARs and other parties in order to determine their obligations under this chapter. By April 1 of each year, the CCO shall make available to the public and submit to the Board of Aldermen annual reports on the implementation and enforcement of this chapter during the preceding calendar year.

B. A not-for-profit organization as defined in Subsection A.4 above may appeal a determination that it is covered under this chapter to the CCO.

C. This chapter is intended to establish civil obligations on covered parties, and the remedies authorized for violations shall be civil, not penal or criminal. Employers covered under this chapter shall be obligated to maintain payroll records documenting wages and benefits received by employees. In the absence of adequate evidence of wages and benefits paid, it shall be presumed that the employer paid no more than the applicable federal or state minimum wage, and did not provide health benefits.

D. The CCO shall monitor and enforce compliance with the requirements of this chapter. Where the

CCO has reason to believe that a contractor, CFAR or other person may have violated any of the requirements of this chapter, or of the implementing rules and regulations, the CCO shall initiate an investigation. Where the CCO determines that a violation has occurred, it may attempt to negotiate an end to the violation and appropriate relief from the violating party including back-pay for the affected workers or persons. Such appropriate relief may include any of the remedies enumerated in Subsection E of this section.

E. Where the CCO determines that a violation of this chapter has occurred and determines that a negotiated resolution is not possible or not appropriate, the CCO may initiate a formal administrative complaint against the contractor, CFAR or other person involved. In addition, any person denied wages or benefits mandated under this chapter or aggrieved by an action or non-action of another person or entity in violation of this chapter or its implementing rules and regulations, or an organization representing the interests of a person so aggrieved, may also file a formal administrative complaint with the CCO on a Complaint Form provided by the CCO. Complaints must be initiated within one year of the denial of wages or benefits or other violation of the chapter. The CCO shall, not later than ten (10) days after initiating or receiving the complaint, mail to the person alleged to have violated the chapter a copy of the complaint, and such person alleged to have violated the chapter shall have twenty (20) days to file a written response. The CCO shall within ten (10) days after the deadline for filing a response schedule a hearing, which shall be held as soon as possible and within thirty (30) days after the response is due, except for good cause shown. The hearing shall be conducted pursuant to the provisions set forth in RSMo Ch. 536. Upon a determination that there has been a violation of this chapter, the CCO may order any of the following relief:

1. Suspension and/or termination of the contract, subcontract, lease, concession agreement or financial assistance agreement;

2. Forfeiture and repayment of any or all of the financial assistance awarded by the City of St. Louis;

3. Disbarring the contractor or CFAR from eligibility for future City contracts and/or financial assistance until all ordered relief has been made or paid in full;

4. Liquidated damages payable to the City of St. Louis in the amount of $500.00 for each week, or part thereof, that an employee has not been provided wages and benefits in accordance with this chapter. Each such weekly violation shall constitute a separate violation of this chapter and must be demonstrated separately.

Within twenty (20) days after the conclusion of the hearing, the CCO shall render a decision. Any aggrieved party may appeal said decision pursuant to RSMo Ch. 536. (1994 C., § 3.99.030; Ord. No. 65597, § 4, 2002.)

3.99.040 Posting.

Every contractor and CFAR shall post in a conspicuous place on any job site subject to this chapter a copy of the living wage rates required under this chapter. The City shall notify contractors and CFARs of the current living wage rate, and any adjustments thereto, within a reasonable period before they become effective. (1994 C., § 3.99.040; Ord. No. 65597, § 5, 2002.)

Chapter 3.100

PUBLIC RECORDS

Sections:

3.100.010 Definitions.
3.100.020 Custodians of records.

3.100.010 Definitions.

The City. As used herein, "the City" shall mean the City of St. Louis and any one or more of its departments, divisions, boards, commissions or other subunits and any of its agencies or related agencies that are subject to RSMo Ch. 610. (1994 C., § 3.100.010; Ord. No. 67667, § 1, 2007.)

3.100.020 Custodians of records.

A. The individuals designated on a list kept and maintained in updated form in the office of the Register, shall serve as custodians of records on behalf of departments, divisions, Boards and commissions.

B. Said custodians shall respond to all requests for access to or copies of a public record in possession of the department or division within the time period provided by state statute.

C. All custodians of records shall complete a Sunshine Law training provided by the City Counselor's Office within one year of their appointment. The City Counselor's Office shall offer a Sunshine Law training for City employees on a quarterly basis.

D. The Board of Estimate and Apportionment shall appoint a custodian of records. The Board of

Estimate and Apportionment shall not approve any appropriation without prior publication of relevant exhibits. The custodian of records for the Board of Estimate and Apportionment shall cause exhibits to be published online 48 hours prior to the vote of the Board of Estimate and Apportionment, unless for good cause such notice is impossible or impractical, in which case as much notice as is reasonably possible shall be given.

E. The fees to be charged for access to or furnishing copies of records shall be in compliance with RSMo 610.026.

F. It is the public policy of the City that records of the City shall be open to the public unless otherwise provided by RSMo 610.021.

(1994 C., § 3.100.020; Ord. No. 71993, § 1, 4-14-2025; Ord. No. 67667, § 2, 2007.)

Chapter 3.105

RESERVED

Editor's Note:

Ord. No. 72042, § 9, adopted October 30, 2025, amended the Code by repealing former Ch. 3.105, §§ 3.105.010—3.105.050, which pertained to the Gateway Mall Advisory Board, and derived from the 1994 Code, §§ 3.105.010—3.105.050; and Ord. No. 68407, adopted July 15, 2009.

Chapter 3.110

PUBLIC WORKS CONTRACTS

Editor's Note:

Ord. No. 69427, adopted Feb. 21, 2013, repealed §§ 3.110.010—3.110.060 and 3.110.070—3.110.090 of Ch. 3.110 and enacted new provisions as set out herein. The former sections pertained to similar subject matter and derived from Ord. No. 68412, §§ 1—9, adopted July 27, 2009.

Sections:

3.110.010 Definitions.

3.110.020 Apprenticeship goal.

3.110.030	**Participation goals for minorities and women.**
3.110.040	**City resident participation.**
3.110.050	**Compliance tracking, monitoring, and reporting.**
3.110.060	**Implementation and administration.**
3.110.065	**Compliance certifications required.**
3.110.070	**Community Jobs Board.**
3.110.080	**Waivers and exceptions.**
3.110.090	**Noncompliance.**
3.110.100	**Non-discrimination policy requirement.**
3.110.110	**Reporting requirement.**
3.110.120	**"Complete Streets" Policy.**
3.110.130	**Prevailing wage requirements.**

3.110.010 Definitions.

When used in Sections 3.110.010—3.110.130 of this Chapter:

Abated project shall mean a development or redevelopment project other than those for residential single or multi-family dwellings with twenty (20) or less units for which the City of St. Louis has tax granted abatements, frozen the tax rate, or provided any other benefit or incentive to encourage a development project.

Apprentice or *apprentices* shall mean real person(s) actively enrolled in a registered apprentice training program registered with the United States Department of Labor, pursuant to and in compliance with 29 USC § 50, et seq., and 29 C.F.R. 29, et seq., of the United States Code of Federal Regulations as it exists and may be amended from time to time.

Apprenticeship program shall mean the same as it does in 29 CFR 29.2.

Award shall mean the selection of a contractor on a public project as herein defined.

BPS means the Board of Public Service.

Bid shall mean a bidder's response to a solicitation for bids, proposals, or statements of qualifications for a public project but does not include state or federally-funded projects which have requirements that preempt the local M/WBE program.

Bidder shall mean any individual, company, or association responding through a bid on or for a public project.

Board letting shall mean the process by which all public work, except emergency work or repairs requiring prompt attention, shall be let by BPS of the City in compliance with Article XXII of the City Charter of the City of St. Louis.

City shall mean the City of St. Louis, Missouri, as well as, to the furthest extent allowed by law, each of its agencies, departments, instrumentalities, corporate, and quasi-public entities.

City bonded projects means, for the purposes of this chapter, those projects which are supported for the development or redevelopment of local infrastructure with bonds issued by the Comptroller's Office or any other City office or based on or through City bonding and the City has or retains a property or investment interest in the project or bond.

City funded project shall mean a project to develop or redevelop local infrastructure supported with bond proceeds, grants, loans, or other capital contributions issued by the City.

Commercially-useful function shall mean a contract fulfilled by a bidder responsible for the materials, supplies, and services used in the performance of the contract on a public project. To determine whether a contractor is performing a commercially-useful function, the amount of work that contractor performs shall be evaluated with respect to normal industry practices, including whether the amount the contractor is to be paid under the contract is commensurate with the work it is to perform. The contractor does not perform a commercially-useful function if its role is limited to an extra participant in a contract through which funds are passed in order to convey only the appearance of meaningful and useful contractor participation.

Construction shall mean, unless otherwise described in this chapter, demolition, preconstruction, construction, reconstruction, improvement, enlargement, alteration, painting and decorating, and/or repair.

Contract shall mean a mutually-binding legal relationship or any modification thereof obligating the contractor to furnish construction, professional services, and/or goods and other services for a public project and for which the City spays or provides financial incentive, including but not limited to bonds, tax rebates, tax abatements, and/or tax increment financing, for others to pay for them.

Contractor shall mean, and be, a catch-all term for a project manager, prime contractor, general contractor, or subcontractor, jointly and severally.

Developer shall mean the individual or business that agrees to develop or redevelop real property as part of a public project.

Directly engaged in construction and/or maintenance shall mean all fixed works Construction performed, whether it be in the actual erection of the structure, or necessary for completion of the construction or improvement constituting the public project, as well as employees working at nearby facilities used by any contractor for construction of or on a public project. Persons engaged solely in the transportation of materials, fuel or equipment to the site, and contractors who perform landscaping work (which shall be defined as seeding, sodding, and planting of trees and shrubs, and installing reinforced and gravity walls of concrete blocks no greater than two thousand five hundred (2,500) pounds), and installation of irrigation systems, including all of its components, shall not be deemed to be directly engaged in construction and/or maintenance for the purposes of this subsection only, but still require payment of prevailing wages for these persons if otherwise required.

Formal procurement shall mean a competitive solicitation method by which bidders are invited by the City of St. Louis to bid through a published advertisement stating the scope, specifications, and terms of the proposed contract.

Good faith effort shall mean all actions taken by a bidder, developer, redeveloper, or contractor consistent with the requirements, rules and procedures established by SLDC to achieve the workforce participation goals outlined in Sections 3.110.020—3.110.040 of this chapter. A good faith effort defense shall only be available for purposes of prevailing wage when a bidder, developer, redeveloper, or contractor demonstrates to the City that it acted in conformity with and in reliance on a regulation, order, ruling, approval, interpretation, or administrative practice or enforcement policy of the City or the State of Missouri, which is in writing and public, and such conformance and reliance and such act or omission must be in good faith.

Informal procurement shall mean a solicitation not requiring formal procurement procedures, including emergency work. All efforts to include M/WBEs in such informal procurements and ensure that M/WBEs are given fair and ample opportunity to participate on public projects shall be made.

Labor hours shall mean the total number of hours on-site employees in construction of public projects receive as hourly-wages. Labor hours shall include hours performed by workers employed by the contractor and all subcontractors working on the public project. Labor hours shall not include hours worked by non-working foremen, superintendents, supervisors, owners and employees when not engaged in construction.

M/WBE shall mean minority and women-owned business enterprise.

M/WBE utilization plan shall mean the form detailing the goods and services to be provided to the contractor by each M/WBE listed to meet the M/WBE goals. The M/WBE utilization plan must be provided at Bid opening by each bidder and include the name(s) of all M/WBE contractors to be utilized in the contract, certification information, the items of work to be performed, and their percentage of the bid amount.

Minorities shall mean persons who are citizens or lawful permanent residents of the United States and who:

a. Have origins in any of the Black racial groups of Africa ("Black Americans");

b. Have origins in any of the peoples of Mexico, Puerto Rico, Cuba, Central or South America, regardless of race ("Hispanic Americans");

c. Have origins in any of the original peoples of the Far East, Southeast Asia, or the Indian subcontinent or the Pacific Islands ("Asian Americans"); or

d. Maintain cultural identification through tribal affiliation or community recognition with any of the original peoples of the North American continent; or those who demonstrate at least one-quarter descent from such groups ("Native Americans").

Minority and women-owned business enterprise availability shall mean the number of businesses located in the St. Louis Metropolitan Area that are willing and able to provide the goods and services being procured on or for a public project.

Notice of intent to perform a subcontract shall mean the form the bidder is required to submit at the time of bid opening signed by each contractor listed in the M/WBE utilization plan. Failure to include a completed notice of intent form signed by each contractor will be sufficient cause to reject a bid as non-responsive.

On-site employee shall mean any laborer, workers, drivers, equipment operators, and crafts persons employed by a contractor at the site of the public project as an employee directly employed by the relevant contractor.

Out of ratio shall mean that the number of apprentices exceeds the number of journeypersons of the same craft classification, using a one-to-one ratio of apprentices to journeypersons, unless Missouri's Prevailing Wage Law is amended to set a different ratio in which case the different ratio shall apply.

Person shall mean any real individual or a partnership, association, corporation, business, business trust, or organized group of persons.

Prevailing wage(s) shall mean the minimum combined hourly wage and fringe benefit amount for a labor hour that is no less than that of the area's standard prevailing wages as provided and determined under the mechanism described in RSMo 290.210—290.340, as such statutes now exist as of the effective date of the ordinance from which this chapter derives. The rate to be used for this section is the prevailing wage rate determined at the time each relevant phase of construction begins and not when a public project is awarded.

Prime contractor shall mean the person responsible for the work on the public project for the entire public project, directly or indirectly, through its own actions and employees or, in whole or in part, through contractors, and that has the full responsibility for completing the terms of the agreement.

Public project shall mean, and be, a catch-all term for a public works contract, city-funded project, city bonded project, tax increment financed (TIF) project, and/or abated project with an estimated base value of the project of seventy-five thousand dollars ($75,000.00) or more, including any extension, renewal, modification, or change thereof.

Public works contract shall mean, for the purposes of this chapter, a contract for construction work for a public project entered into by BPS and signed by the President of BPS in the name of the City or a contract for construction on land owned or controlled by the City of St. Louis or any agency or instrumentality of the City which is leased to another party, with an estimated base value of the project of seventy-five thousand dollars ($75,000.00) or more.

Subcontractor shall mean a person that has a contract on a public project to perform a service or provide materials, equipment, or supplies as a part of the scope of work set forth in a prime contract with a prime contractor, but that is not a prime contractor or a general contractor. A subcontractor need not have a direct contract with a prime contractor to be a subcontractor or contractor under this chapter.

Supervisor shall mean individuals such as superintendent, non-working-foreman, project manager, safety director, or non-working lead tradesman on a public project who has the authority, in the interest of a contractor, to hire, transfer, suspend, lay off, recall, promote, discharge, assign reward, or discipline other employees, or responsible to direct them, or to adjust their grievances, or effectively to recommend such action, if in connection with the foregoing the exercise of such authority is not of a merely routine or clerical nature, but requires the use of independent judgment.

SLDC shall mean the St. Louis Development Corporation.

Tax increment financed project means those projects outlined in Missouri's Real Property Tax Increment Allocation Redevelopment Act, RSMo 99.800—99.865.

User department shall mean the department that develops the requisitions for the City of St. Louis.

Workforce utilization goals or *workforce participation goals* means the apprenticeship, minority and women, and City resident participation goals set by this chapter.

(1994 C., § 3.110.010; Ord. No. 71962, § 1, 2-28-2025; Ord. No. 71094, 1, 2-7-2020; Ord. No. 69427, § 2, 2-21-2013.)

3.110.020 Apprenticeship goal.

On each public project for which the design team's estimated base value of the contract is four hundred thousand dollars ($400,000.00) or more, there shall be a uniform goal that a minimum percentage of twenty (20) percent of each contractor's labor hours are to be performed by those who are enrolled in an apprenticeship program. An apprentice, if they are minorities and/or women, may also be counted towards the goals set forth in Section 3.110.030. SLDC shall set the goal minimum percentage of Apprentices who shall be minorities and/or women in a percentage consistent with the most recently City adopted disparity study.

(1994 C., § 3.110.020; Ord. No. 71962, § 2, 2-28-2025; Ord. No. 71094, 2, 2-7-2020; Ord. No. 70767, § 9, 5-4-2018; Ord. No. 69427, § 3, 2-21-2013.)

3.110.030 Participation goals for minorities and women.

On each public project for which the design team's estimated base value of the contract is four hundred

thousand dollars ($400,000.00) or more, the contract goals shall be that twenty-five (25) percent of all labor hours are to be performed by minorities and seven (7) percent of all contract labor hours are to be performed by women.
(1994 C., § 3.110.030; Ord. No. 71962, § 2, 2-28-2025; Ord. No. 71094, 2, 2-7-2020; Ord. No. 70767, § 9, 5-4-2018; Ord. No. 69427, § 4, 2-21-2013.)

3.110.040 City resident participation.

On each public project for which the design team's estimated base value of the contract is four hundred thousand dollars ($400,000.00) or more, the contract goals shall be that twenty-three (23) percent of all labor hours are to be performed by persons who reside in the City of St. Louis ("City residents"). Such City residents, if they are minorities and/or women, may also be counted towards the goals set forth in Section 3.110.030 of the City Code.
(1994 C., § 3.110.040; Ord. No. 71962, § 2, 2-28-2025; Ord. No. 71094, 2, 2-7-2020; Ord. No. 70767, § 9, 5-4-2018; Ord. No. 69427, § 5, 2-21-2013.)

3.110.050 Compliance tracking, monitoring, and reporting.

A. *Implementation, Management, Monitoring, and Annual Reporting.* SLDC is delegated authority and responsibility to manage and monitor compliance with these workforce utilization goals by the City of St. Louis, its contractors, and on public projects.

B. *Delegation of Duties.* SLDC may contract for programmatic operations related to the compliance elements of this chapter, which shall be performed under SLDC supervision.

C. *Construction Workforce Development and Compliance Fee.* SLDC shall determine the incremental costs associated with implementation of monitoring and compliance efforts on public projects and will establish appropriate fees and other funding sources to cover the costs of monitoring and compliance efforts on projects to support workforce development, diversity and inclusion initiatives including pre-apprenticeship programs, and prevailing wage compliance.

D. *Proof of Goal Attainment—Certified Payroll Reporting.* Prime contractors working under contracts on public projects must utilize a payroll verification program as directed by SLDC and must submit payroll information reflecting the number of labor hours performed, including but not limited to the specific certified payroll requirements for prevailing wage compliance in this chapter.

E. *Contract Tracking and Monitoring System.* Prime contractors and subcontractors working under contracts on public projects must utilize a contract monitoring system as directed by SLDC. This system shall track M/WBE goals and workforce participation goals and commitments under this chapter.

F. *Reporting.* A record of any discrepancies or proof of failure to comply with the utilization goals or other requirements of this chapter shall be maintained by SLDC. Compliance reports shall be submitted annually to the Mayor and the Board of Aldermen.

G. *Prompt Payment to Subcontractors.* All prime contractors and contractors shall pay to contractors working under contracts on public projects progress payments not later than thirty (30) days consistent with the Prompt Payment Act, RSMo 8.960. All prime contractors and contractors shall pay to subcontractors working under contracts on public projects final payments not later than thirty (30) days consistent with the Prompt Payment Act, RSMo 8.960.

H. *Payment Verification Program.* All prime contractors and contractors working under contracts on public projects must utilize the compliance payment verification software as directed by SLDC. Payments made to M/WBE firm contractors shall be verified in order to monitor compliance with this chapter. The payment verification system shall allow contractors to electronically notify SLDC of late payments or nonpayments from other contractors. Each contractor listed as paid for the previous payment application shall be electronically contacted to verify that payment was received. SLDC shall manage this system.
(1994 C., § 3.110.050; Ord. No. 71962, § 3, 2-28-2025; Ord. No. 71094, 3, 2-7-2020; Ord. No. 69427, § 6, 2-21-2013.)

3.110.060 Implementation and administration.

A. The requirements of this chapter shall apply to all public projects for which a request for proposal is issued, a public works contract is executed, a redevelopment plan is approved, or a tax incentive such as a tax abatement, tax increment financing, or a bond is approved, whichever applicable event is the last to occur, or when such are extended, modified, or amended, after the effective date of this chapter. If the require-

ments of this chapter do not apply to a public project, then any previous requirements set by an ordinance at the time continue to apply.

B. All agreements and contracts for public projects which are subject to the requirements of this chapter shall include a provision for the imposition of debarment, cessation of payments or incentives or permits for non-compliance, and penalties in event of non-compliance, as provided under Section 3.110.090 of this chapter.

C. BPS, Building Division, Building Permit Section, and any and all other City permitting offices or agencies shall not allow any permit to issue for work to be performed on public projects without first obtaining from SLDC a signed statement from the prime contractor and contract manager stating that they agree to abide by the provisions of this chapter and the protections it embodies on behalf of themselves, and shall require any contractors, at all levels, to abide by the same requirements.

D. SLDC shall be responsible for the administration and implementation of this chapter and chapter and shall develop and adopt rules in furtherance of such administration and implementation.

1. Said rules shall set forth a system for monitoring contractors' actual use of apprentices, minorities, women and City residents, and with complying with prevailing wage requirements.

2. SLDC shall establish contract specification language to implement the apprenticeship goals, the participation goals for apprentices, minorities, women, and City residents, and with complying with prevailing wage requirements, and said language shall be included in all applicable agreements and contracts, including redevelopment plans, redevelopment agreements, public works contracts, and agreements relating to the payment of the City funds and the granting and issuance of incentives including tax abatements, tax increment financing, tax rebates, and bonds, as determined by SLDC and BPS.

3. SLDC shall administer, manage, and implement prevailing wage compliance as provided herein.

4. SLDC shall secure additional expert services as they may deem necessary to effectively implement this chapter, such as to support investigation or auditing, or in the event they fail to act to ensure the effective implementation and administration of this chapter the Board of Aldermen may by resolution of the Board request SLDC secure such experts services as may be necessary to be in compliance with the foregoing requirements.

5. SLDC shall establish rules specifying how it will calculate any estimated penalty amounts owed to the City as provided under this chapter.

6. SLDC, in coordination with any City entity as may be necessary, shall withhold or otherwise facilitate the withholding amount of a five (5) percent of the total amount of payments owed to a contractor for under a public works contract. Such amount may be released following project close-out as provided under this chapter.

E. Pre-award conferences ("conferences") shall be held by BPS or SLDC as is appropriate depending on the type of public project at issue for prime contractors and other contractors. BPS shall invite SLDC to attend construction project conferences. Conferences shall be required for all public projects, however BPS or SLDC may, in their discretion, excuse a contractor from attending a conference if they have already attended at least one conference for said public project. Conferences shall be for the following purposes:

1. To confirm that the apparent lowest and most responsive bidder is committed to meeting the goals established in the bid solicitation;

2. To offer to apparent lowest and most responsive bidder all available city resources and programs which support workforce participation and prevailing wage compliance or which assist the bidder and contractors in meeting such goals and requirements; and

3. To educate and instruct contractors and bidders on this chapter's requirements.

F. SLDC shall assist contractors, workers, and public entities and agencies working for, or within, the City in resolving questions, requests for assistance, complaints, and non-compliance pertaining to workforce utilization goals and prevailing wage compliance, and shall educate the public, the construction industry, workers, and labor organizations of the workforce utilization goals and prevailing wage requirements set by City ordinances.

G. SLDC shall take all actions authorized by law to ensure compliance by bidders, contractors, and subcontractors with all requirements of the sections of this chapter and, in particular, with the requirement of compliance with all workforce utilization goals and prevailing wage provisions.

H. SLDC may assist bidders, contractors, and subcontractors to achieve or maintain compliance with these sections.

I. SLDC shall verify information from bidders and contractors with regular and recurring onsite visits and request the submission of relevant employment and other related data from such.

(1994 C., § 3.110.060; Ord. No. 71962, § 3, 2-28-2025; Ord. No. 71094, 3, 2-7-2020; Ord. No. 69427, § 7, 2-21-2013.)

3.110.065 Compliance certifications required.

Any applicant to receive a contract or award for or on a public project for which the design team's estimated base value of the Contract or Award is seventy-five thousand ($75,000.00) or more, as provided under this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended must, as a condition of receiving and retaining the same:

A. Certify for itself, and for each contractor directly engaged in construction and/or maintenance, by specific line item and question, a notarized statement that:

1. None have been barred from bidding on any federal, municipal, political subdivision, or U.S. state projects within the last year;

2. All will serve a commercially useful function on the project;

3. None have had any U.S. state, municipal, political subdivision, or City-issued business, trade or contracting license suspended or revoked within the last year;

4. Any drug-testing policy enforced for on-site employees for the project for which the bid is being submitted is compliant with all applicable local, state, and federal laws, is available in writing to all on-site employees, and such policy shall be provided therein by attachment;

5. All will perform the construction for their own contract with on-site employees and not through independent contractors;

6. All licensing required will remain with the appropriate licensing authority for the project;

All on-site employees directly engaged in construction and/or maintenance on the project will have and maintain any licenses that are required throughout the duration of the project, and further provide the City with the names and/or types of licenses that are known or likely to be required;

7. Prevailing wages will be paid to all on-site employees directly engaged in construction and/or maintenance on the project;

8. All on-site employees shall be OSHA ten-hour, and on-site employee supervisors shall be OSHA thirty-hour, certified in compliance with then-current OSHA safety requirements prior to working on the project and retain that certification for the project's duration;

9. Their on-site employees who do not voluntarily opt out of receiving such coverage for themselves and those on-site employees' dependents during the project's lifetime will have healthcare that meets the minimum value standard set out in the Affordable Care Act with a showing that said healthcare is provided either directly or through contributions irrevocably made to a fund, plan or program, governed by 29 USC 1191b, that provides healthcare, or the on-site employee's spouse or parent's employer provides a healthcare plan that meets the minimum value standard set out in the Affordable Care Act at no cost to the on-site employee; and

10. They will comply with all applicable laws, ordinances, rules and regulations governing the conduct of business in the City of St. Louis and the State of Missouri.

B. For any public project with an estimated cost of seventy-five thousand dollars ($75,000.00) or more, each contractor and subcontractor shall individually certify that it does or does not participate in or maintain an apprenticeship program for each scope of work in which it has or will have employees directly engaged in construction and/or maintenance employed and name the same, and, if the Contractor does participate in or maintain an apprenticeship program, state whether:

1. That apprenticeship program disclosed has active, registered apprentices;

2. That apprenticeship program complies with all required federal Department of Labor regulations, including affirmative-action obligations described in 29 C.F.R. part 30; and

3. Whether that contractor will utilize and employ on such project apprentices per scope of work at the ratio of apprentices to journeypersons at a ratio not greater than one-to-one.

(Ord. No. 71962, § 4, 2-28-2025.)

3.110.070 Community Jobs Board.

The Mayor of the City of St. Louis with the President of the Board of Aldermen shall appoint a Com-

munity Jobs Board with approval from the Board of Aldermen, which shall have thirteen (13) members. Two (2) members shall be appointees of the Comptroller; two (2) representatives of women construction contractors' associations; two (2) members shall be representatives of minority construction contractors' association(s); three (3) members shall be representatives of community and faith based organizations; two (2) members shall be representatives of construction labor unions; and two (2) members shall be representatives of general and prime construction contractor associations. The Community Jobs Board shall create a labor, management and community sub-committee to review the impact of the chapter on specific projects and the Board shall review and provide feedback to the Agency on the manner in which this chapter is implemented and to review the results of the implementation of this chapter and provide feedback to the Agency on whether or not this chapter is achieving the intended results. The Agency shall provide quarterly reports, including a report of any waivers granted by the Agency during the preceding quarter, to the Community Jobs Board and shall schedule quarterly meetings of the Community Jobs Board. Members of the Community Jobs Board shall serve in staggered two-year terms. (1994 C., § 3.110.070; Ord. No. 69427, § 8, 2-21-2013.)

3.110.080 Waivers and exceptions.

The Agency is authorized to issue a written waiver or reduction of the goals set forth in Sections 3.110.020, 3.110.030 and 3.110.040 of this chapter on specific contracts for one or more of the following reasons:

A. The Agency determines that the project carries a disproportionately high ratio of material costs to labor hours, which does not make the goals economically feasible;

B. The project is being undertaken in connection with an emergency;

C. The Agency otherwise determines that a waiver or reduction is appropriate.

Waivers or reductions may be made before or during the bidding process if information related to Subsections A, B and C of this section not previously known is brought to the attention of the contracting agency. No waivers shall be granted following the award of a contract unless such contract is terminated and the project is re-bid. (1994 C., § 3.110.080; Ord. No. 69427, § 9, 2-21-2013.)

3.110.090 Noncompliance.

A. *Investigation and Determination of Non-Compliance with Prevailing Wage Requirements.*

1. SLDC shall investigate whether prevailing wages have or have not been paid in accordance with the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended.

a. For public projects of a base value of seventy-five thousand dollars ($75,000.00) or more, SLDC shall initiate an investigation into potential noncompliance if a person reports potential noncompliance to SLDC.

b. For public projects of a base value of four hundred thousand dollars ($400,000.00) or more, SLDC shall also independently monitor and investigate against potential noncompliance.

2. In investigating whether prevailing wage requirements have or have not been paid in compliance with the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended, SLDC shall review all evidence submitted under the City ordinances relating to prevailing wage requirements, and all other evidence available to SLDC, and shall make an initial determination whether or not a contractor or subcontractor has complied with prevailing wage requirements. SLDC shall determine, based upon the totality of circumstances, whether good faith efforts were made to meet prevailing wage requirements.

3. If SLDC determines, following an investigation, that prevailing wage requirements have not been met in accordance with the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended, SLDC shall calculate any amounts due, and issue notices to Contractors and Subcontractors of non-compliance, including corrective action plans, as provided under this chapter. SLDC shall also take reasonable steps to notify the offending Contractor's and Subcontractor's employees of the non-compliance.

4. Any person that makes a report of potential non-compliance with prevailing wage requirements to SLDC is entitled to remain informed of the status of the investigation.

B. *Investigation and Determination of Non-Compliance with Workforce Participation Goals.*

1. SLDC shall investigate compliance with the workforce participation goals for all public projects subject to this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended.

a. For public projects of a base value of seventy-five thousand dollars ($75,000.00) or more, SLDC shall

initiate an investigation into potential noncompliance if a person reports potential noncompliance to SLDC.

b. For public projects of a base value of four hundred thousand dollars ($400,000.00) or more, SLDC shall also independently monitor and investigate for potential noncompliance.

2. In investigating whether contractor enterprise M/WBE goals have or have not been paid in accordance with the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended, SLDC shall review all evidence submitted under the City ordinances relating to then existing goals, and all other evidence available to SLDC, and shall make an initial determination whether or not a contractor complied with the same and shall determine, based upon the totality of circumstances, whether good faith efforts were made to meet contractor enterprise M/WBE goals and workforce participation goals.

3. If SLDC determines, following an investigation, that M/WBE goals and workforce participation goals have not been met in accordance with the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended, SLDC shall calculate any amounts owed to the City as provided under this chapter, and issue notices to contractors of noncompliance, including corrective action plans, as provided under this chapter.

4. Any person that makes a report of potential non-compliance with contractor enterprise M/WBE goals or workforce participation goals to SLDC is entitled to remain informed of the status of the investigation.

C. *Non-Compliance with Prevailing Wage Requirements and Workforce Participation Goals.*

1. The failure to meet the requirements of this chapter, Ordinance 69427 as amended, and Ordinance 71094 as amended, including, but not limited to, failure to submit required documentation and reporting, failure to meet to resolve issues, failure to pay the prevailing wage, and failure to use good faith efforts to comply with M/WBE enterprise goals and workforce participation goals and prevailing wage laws, regulations, and other requirements, shall constitute non-compliance with those ordinances, laws, and requirements.

D. *Notice of Non-compliance, Corrective Action, and Steps to Return to Compliance.*

1. If after investigation SLDC determines there is non-compliance with the provisions of this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended, SLDC shall provide the contractor with prompt notice of the non-compliance, and a corrective action plan that would bring the contractor into compliance, and a twenty (20) business days period to come into compliance.

a. For purposes of prevailing wage non-compliance pertaining to unpaid wages owed to workers, compliance shall mean and include the payment to all employees of all prevailing wages owed to such workers, as calculated by SLDC.

2. The contractor may raise to SLDC reasonable doubts as to the correctness of SLDC's calculations, findings, or corrective actions to be taken within the twenty (20) business days. In the event the contractor raises reasonable doubts as to the correctness of the calculations, findings, or corrective actions to be taken within the twenty (20) business days, SLDC may withdraw the notice and corrective action plan without prejudice, and reassess its initial findings with any information provided by the contractor. If after such a reassessment SLDC continues to find the contractor is non-compliant, SLDC may issue one new notice of non-compliance with calculations, amounts owed, or corrective actions to be taken, with one new twenty (20) business days period.

3. If the contractor complies by taking all actions required under the corrective action plan to come into compliance, then SLDC will consider the matter resolved.

4. If after the twenty (20) business days the contractor has not come into compliance, as determined by SLDC in its discretion, SLDC shall notify the City Counselor's Office of the contractor's non-compliance for enforcement of the remedies provided herein.

E. *Remedies for Non-Compliance.*

1. In the event the City Counselor's Office is notified by SLDC of a contractor's non-compliance with this chapter, Ordinance 70194 as amended, or Ordinance 69427 as amended, the City Counselor's Office may seek any or all of the remedies provided herein as well as any other remedies available by law. Nothing herein implies the loss of any private right of action.

2. The City Counselor's Office shall, in its discretion, notify any impacted or otherwise relevant City departments of contractors SLDC has determined to be non-compliant pursuant to this chapter.

3. All contracts for public projects shall contain provisions pertaining to remedies and penalties as provided under this chapter.

4. Debarment.

a. In the event of a violation a contractor is determined by SLDC to not be in compliance of with this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended, the City Counselor's Office SLDC shall provide the City and BPS with recommendations for debarment initiate contractor debarment proceedings as provided under Chapter 6.16.030 of the City Code, or its successor. SLDC and the City Counselor's Office shall and provide the appointed impartial hearing panel with any documentation or assistance as may be necessary during the debarment proceedings process.

b. As determined by the appointed impartial hearing panel, the applicable developer and/or contractor may be barred from participating in or on a public project for a period of one (1) year or more.

c. Any developer or contractor aggrieved by a final decision on debarment shall have the right to appeal in accordance with Section 6.16.030 of the City Code, or its successor.

d. BPS shall make quarterly reports to the TIF Commission, the Board of Aldermen, the Mayor and the Comptroller of the City of St. Louis regarding any developers and/or contractors debarred for non-compliance with this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended. Such reports shall include a description of the associated violations giving rise to the debarment. This list shall also be posted publicly on the City's website.

e. SLDC, in consultation with the City Counselor's Office and BPS, shall notify in writing every developer and contractor whose debarment period has ended eligibility has been reinstated within ten (10) business days of such debarment period ending.

5. *Cessation of Payments or Incentives or Permits.*

a. In the event a contractor is determined by SLDC to not be in compliance with this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended, the City Counselor's Office shall request any City department, agency, or entity initiate proceedings that may be required in order to effect:

i. The immediate cessation and/or withholding of any payments, abatements, frozen tax rates, or other benefits or incentives to the developer and/or contractor that are associated with the public project for which SLDC's investigation has determined non-compliance;

ii. The immediate rescission and/or revocation of any permits held by the developer and/or contractor associated with the public project for which SLDC's investigation has determined non-compliance; and/or

iii. The immediate issuance of any stop work orders associated with the public project for which SLDC's investigation has determined non-compliance.

F. *Financial Penalties for Certain Violations.*

1. *Prevailing Wage Violations.*

a. In the event a contractor is determined by SLDC to not be in compliance with any of the provisions this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended or the Missouri statutes and regulations providing for payment of the prevailing wage on construction on public works contracts, such developer or contractor shall owe to the City and pay to the City the following penalties to the City:

i. A penalty in the amount of five hundred dollars ($500.00) per day per worker paid less than the prevailing hourly rate of wages or for any other violation of Missouri's prevailing wage laws.

ii. A penalty in the amount of the unpaid wages owed to workers under Missouri's prevailing wage laws.

b. SLDC shall calculate the amounts owed to the City for such penalties, in coordination with the City Counselor's Office.

c. For public works contracts, at the direction of the City Counselor's Office, SLDC may, from the five (5) percent amount withheld by SLDC pending project close-out provided for under Section 3.110.060 of this chapter, retain any penalty amounts owed to the City as provided under this section in order to satisfy such penalties. In the event that the five (5) percent amount withheld is not sufficient to satisfy any such penalty amounts owed to the City, the City Counselor's Office shall coordinate and implement any actions necessary to collect such unpaid penalties owed to the City.

d. For public projects with tax incentive, tax abated, or tax frozen projects, the City Counselor's Office shall coordinate and implement any actions necessary to collect such unpaid penalties owed to the City.

e. The City Counselor's Office, in coordination with the City Treasurer's Office, SLDC, and any City department, agency, or entity as may be necessary, has the authority to coordinate the distribution of any wages owed to affected workers as collected through City penalties.

i. The City Counselor's Office shall coordinate with the City Treasurer's Office and any City entity as

may be necessary to ensure any penalties received by the City for violations of prevailing wage laws pertaining to unpaid wages owed to workers shall be placed in escrow in a fund held in the City Treasury.

ii. The City Counselor's Office shall, in coordination with the City Treasurer's Office, develop identity verification requirements to verify the identity of affected workers seeking wage restitution from the escrow fund held in the City Treasury.

iii. SLDC shall assist the City Counselor's Office in contacting affected workers to inform them that such wage restitution is available and advise on the process through which such affected worker may access such wage restitution.

iv. After verifying the identity of the affected worker, the City shall provide such affected worker with a check in the amount of unpaid wages owed to such worker pursuant to this chapter and Missouri's prevailing wage laws.

f. To the extent allowed by law, penalties owed to and paid to the City under this subsection in excess of the amount of unpaid wages owed to affected workers shall be used to enforce the prevailing wage requirements of this chapter and to provide workforce training and development services for minorities, women, apprentices, and City residents.

2. *Workforce Participation Goals Violations.*

a. In the event a contractor is determined by SLDC to not be in compliance with the workforce participation goals provided by this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended, such developer or contractor shall pay a penalty to the City in an amount equal to the difference between the monetary amount of the participation goals specified by this chapter, Ordinance 70194, and Ordinance 69247 and the amount actually paid to minorities, women, apprentices, and city residents.

b. SLDC shall calculate the amounts owed to the City for such penalty, in coordination with the City Counselor's Office. In determining the amount actually paid to minorities, women, apprentices, and City residents, no credit shall be given for that portion of the minority, women, apprentices, and City resident participation not approved by SLDC; provided, however, that SLDC may allow credit if it determines, in coordination with the City Counselor's Office, that the developers and contractors acted in good faith.

c. For public works contracts, at the direction of the City Counselor's Office, SLDC may, from the five (5) percent amount withheld by SLDC pending project close-out provided for under Section 3.110.060 of this chapter, retain any penalty amounts owed to the City as provided under this section in order to satisfy such penalties. In the event that the five (5) percent amount withheld is not sufficient to satisfy any such penalty amounts owed to the City, the City Counselor's Office shall coordinate the collection of these penalties, in coordination with SLDC as may be necessary.

d. For public projects with tax incentive, tax abated, or City-bonded projects, the City Counselor's Office shall coordinate the collection of these penalties, in coordination with SLDC as may be necessary.

e. To the extent allowed by law, penalties owed to and paid to the City under this subsection shall be used to enforce the prevailing wage requirements of this chapter and to provide workforce training and development services for minorities, women, apprentices, and City residents.

(1994 C., § 3.110.090; Ord. No. 71962, § 5, 2-28-2025; Ord. No. 70767, § 10, 5-4-2018; Ord. No. 69427, § 10, 2-21-2013.)

3.110.100 Non-discrimination policy requirement.

On each City public project for which the design teams estimated base value of the contract is seventy-five thousand dollars ($75,000.00) or more, the City shall require that all developers, prime contractors, and subcontractors assigned to work have a personnel policy which prohibits discrimination based upon race, color, creed, religion, sex, national origin, age, disability, veteran status, sexual orientation, gender identity or expression. Labor hours performed by workers employed by developers, redevelopers, prime contractors, or subcontractors contractors which do not have non-discrimination policies consistent with this section shall not be counted toward utilization goals. Developers, prime contractors, and subcontractors shall timely produce copies of their non-discrimination policies to SLDC upon request.

(1994 C., § 3.110.100; Ord. No. 71962, § 7, 2-28-2025; Ord. No. 69427, § 11, 2-21-2013.)

3.110.110 Reporting requirement.

The Agency shall furnish an annual report to the Board of Aldermen on or before September 30 of each year for the preceding fiscal year, describing the progress of administering and implementing the requirements of this chapter. (1994 C., § 3.110.110; Ord. No. 69427, § 12, 2-21-2013.)

3.110.120 "Complete Streets" Policy.

A. *Complete Streets Policy.* This section shall set forth the guiding principles that shall be routinely used in the City of St. Louis for transportation projects. The City of St. Louis shall develop and maintain a safe, reliable, efficient, integrated, accessible, and interconnected multimodal transportation system that shall equally promote access, safety, and health for all users. Therefore, it shall be the official policy of the City of St. Louis to routinely incorporate complete streets principles into all transportation projects that are within the City of St. Louis transportation network, including those projects or services managed by other public agencies or districts. complete streets principles shall also be considered in all planning and land use decisions. The City of St. Louis shall consider all users of all abilities in all aspects of its transportation funding, decision-making, planning, new construction, reconstruction, retrofits, maintenance, and operation of the transportation system. A complete streets approach shall also prioritize enhancing access to destinations such as schools, parks, healthy food establishments, public transit, and other key locations. The complete streets approach shall prioritize vision zero goals in compliance with the relevant provisions of the transportation and mobility plan and any resolutions passed by the Board of Alderman pertaining to vision zero safety priorities. Accommodations will be provided for all modes of transportation to continue to use streets and sidewalks safely during any construction or repair work which takes places within the right of way or within parks.

B. *Definitions.* The following terms shall have the meaning herein prescribed unless otherwise expressly stated in this section:

1. "City" shall mean the City of St. Louis.

2. "ADA" shall refer to the Americans with Disabilities Act as adopted in 1990 and as implemented by the United States Access Board and other federal agencies.

3. "Complete Street" is a transportation corridor that is planned, designed, operated, and maintained for all users. Complete streets are planned, designed, and operated to enable safe accessible travel for all users with a goal of creating an integrated network of complete streets. Transportation improvements, facilities and amenities that may contribute to complete streets and that are considered as elements of a complete street may include: public rights-of-way that are compliant with the Americans with Disabilities Act (ADA) and related regulations, guidance, and best practices as suggested by the U.S. Department of Transportation and United States Access Board; allocation of space within the public right of way and suitable facilities for pedestrian and bicycle travel; street and sidewalk lighting; access management; ADA-compliant transit facilities; context-sensitive landscaping; utility relocations; street amenities; and accessible connections to adjacent land uses.

4. "Users" means individuals that use streets, including pedestrians, cyclists, motorists, public transportation riders and operators, emergency vehicles, freight providers, and people of all ages and abilities, including children, youth, families, older adults, and individuals with disabilities.

5. "Pedestrian" means:

a. A person who is on foot; or

b. A person who is using any means of conveyance propelled by human power other than a bicycle; or

c. A person who is using an electric personal assistive mobility device; or

d. A person who is operating a self-propelled wheelchair, motorized tricycle or motorized quadricycle and, by reason of physical disability, is otherwise restricted in movement as or unable to move about on foot.

e. A person with a disability within the meaning of the ADA, including those who use assistive technology to move from place to place.

6. "Committee" shall refer to the Complete Streets Advisory Committee as established by this section.

7. "Complete Streets Policy Coordinator" shall refer to a staff person or persons in the assigned departments or agencies who shall be designated to assist the department or agency with the implementation of this section.

8. "Major Project" is a project with transportation or mobility elements undertaken, constructed, managed, or permitted by the City of St. Louis within the public right of way with a capital cost of five hundred thousand dollars ($500,000.00) or more.

C. *Complete Streets Principles.*

1. Complete streets practices shall be adopted into the regular operations of all relevant departments of the City of St. Louis. These departments shall approach all relevant projects and programs as opportunities to improve streets and the transportation network for all categories of users. Relevant departments

shall work in coordination across City departments, agencies, and jurisdictions to maximize opportunities for complete streets, connectivity, and cooperation.

2. The City shall use context sensitive improvements to implement complete streets, including but not limited to sidewalks, shared use paths, bicycle lanes, bicycle routes, bicycle boulevards, paved shoulders, street trees, landscaping, planting strips, accessible curb ramps, crosswalks, pedestrian refuge islands, pedestrian signals, road and lane diets, signs, street furniture, traffic calming, bicycle parking facilities, public transit stops and facilities, transit priority signalization, bicycle priority signalization, and prioritization of vulnerable users. Planning should align with all adopted transportation plans for the City, including the transportation and mobility plan.

3. In order to ensure coordination and compliance across all departments and divisions, the President of the Board of Public Service shall designate individuals within the Board of Public Service to develop internal practices that guide staff actions and decisions and shall use such resources from organizations and guides such as the National Association of City Transportation Officials (NACTO), Manual on Uniform Traffic Control Devices (MUTCD), Federal Highway Association (FHWA), American Association of State Highway and Transportation Officials (AASHTO), Missouri Department of Transportation (MoDOT), BPS Standard Details for Public Works Construction, BPS Traffic Calming Guide, ADA construction standards, the City of St. Louis transportation & mobility plan (TMP), and any other standards for right of way to be developed which advance complete streets implementation. The City shall make the most recently adopted design manual publicly available through the City website. These practices shall be regularly updated by the Board of Public Service.

4. The Board of Public Service, Street Department, Planning & Urban Design Agency, Parks Division, and the Office on the Disabled shall identify one (1) or more complete streets policy coordinator(s) within each department or division to oversee implementation of and future updates to this policy.

5. In order to facilitate and efficient, effective, and transparent assessment process by the Complete Streets Advisory Committee, the relevant lead department or departments on a given project should provide supporting information for each project to the Complete Streets Advisory Committee that includes justifications/rationale in cases where accommodations for all modes were not included/considered. Rationale for not accommodating all user modes may include, but is not limited, to the following, in addition to any related recommendations included in the transportation and mobility plan on this topic:

(a) Complete streets principles are prohibited by law, such as bicycle and pedestrian facilities within access-restricted highway corridors; and

(b) Routine maintenance that does not change the roadway geometry or operations; and

(c) Emergency repairs to streets and sidewalks due to broken utility lines or natural disasters; and

(d) The cost of complying with the policy on a project would substantially exceed the public value to be realized, taking into consideration the need and probable use of the project; and

(e) Compliance with policy would substantially impair unique characteristics of great public value, such as historical importance or sensitive environmental or cultural characteristics.

D. *Implementation.*

1. A Complete Streets Advisory Committee is hereby established and composed of at minimum the following representatives: two (2) members of City's Board of Public Service (President's Office) and two (2) members from the Planning and Urban Design Agency, including the Sustainability Director; two (2) members from the Streets Department, the Office on the Disabled, Department of Public Safety, Health Department, and one (1) member of the public by Mayoral appointment who is a resident of the City of St. Louis and has demonstrated a vested interest in safety and expansion of a multimodal transportation network; the Complete Streets Program Manager, or the designee of the Executive Director of the Planning and Urban Design Agency, shall serve as the chair of the Committee.

The Committee shall:

(a) Meet at least quarterly to provide oversight and guidance on implementation of complete streets within the City. Meetings of the Committee shall be advertised, open to the public, held in accessible locations, and include the opportunity for public comment.

(b) Invite organizations to present to the committee at meetings at which major projects they are involved in will be discussed by the committee to provide major project updates as needed. Organizations shall

include but are not limited to Bi-State Development Agency, Missouri Department of Transportation (MoDOT), and Great Rivers Greenway (GRG).

(c) Review and assess alignment with the complete streets policy and adopted transportation mobility plan of any major transportation project undertaken, constructed, managed, or permitted in the public right-of-way with an estimated capital cost of five hundred thousand dollars ($500,000.00) or greater. This assessment shall be included in the annual report and discussed during committee meetings.

(d) Oversee the implementation of the City's transportation & mobility plan, including through the monitoring of relevant transportation and safety metrics. The Committee shall also oversee the data maintenance of the City's high injury network and provide input on the prioritization of projects in the City's safety action plan.

(e) Develop key benchmarks and performance measures for the implementation of complete streets. Reporting on these benchmarks shall be available on the City's website. Data shall be updated at least annually. Inclusion of the "vulnerable populations" shall be one (1) of these benchmarks. The vulnerable populations index shall use U.S. Census Bureau data to measure the percentages of the following populations groups in each census tract: poverty, non-Hispanic and non-White, Hispanic, limited English proficiency (LEP), disabled, elderly, and carless. The weight and measure of this data to determine which census tracts are to be considered vulnerable shall be an internal policy developed by the Committee.

(f) Provide feedback and recommendations related to complete streets implementation to relevant departments, agencies, and the Board of Aldermen. Such recommendations may include suggested policy and process changes to better incorporate complete streets practices into operations.

(g) Establish guidelines for inclusive public engagement practices to be required for major transportation improvement projects sponsored or managed by the City, including but not limited to public meetings, public notice, and information sharing. The guidelines shall ensure ongoing, equitable and inclusive community engagement in all phases from planning through implementation, with a particular emphasis on engagement of communities that have traditionally been underrepresented in planning and decision-making processes. The guidelines shall include specific strategies such as overcoming barriers to engagement associated with race/ethnicity, income, age, disability, English language proficiency, vehicle access and should be publicly available on the appropriate City website.

(h) Make recommendations to the City's Capital Committee on transportation and mobility-related projects for inclusion and/or prioritization in the City's capital improvement plan. In its recommendations, the Committee shall work to ensure that planned improvements prioritize:

(1) Vulnerable users, including pedestrians, children, elderly, and low-income residents; those with vision, hearing, or other mobility disabilities; and people of color.

(2) The need for improvements to fulfill mobility goals and implement the City's transportation & mobility plan; and

(3) The rate of fatalities and injuries as shown in the City's high injury network.

(i) In addition to the above requirements, provide an annual report to the Mayor, the Board of Aldermen, and the Chair of the Board of Aldermen Public Infrastructure and Utilities Committee, or its successor committee, that is due on the first workday of May of each year. Such report shall be made publicly available on the City's website. Such report should detail:

(1) Updates to the City of St. Louis safety action plan/high injury street network, including how the high injury network corresponds to equity indicators within the City;

(2) A Transportation & Mobility Plan annual implementation summary report, including major project assessments; and assessments on projects as identified pursuant to D.1(h) of this section.

(3) Project recommendation memo as delivered to the Capital Committee and presented during the Complete Streets Advisory Committee meeting in advance of the first Capital Committee meeting of each year; and

(4) Key benchmarks including:

a. Lane miles dedicated to active transportation;

b. Linear feet of new of reconstructed pedestrian accommodations, and cycling facilities categorized by protected or unprotected;

c. Number of new curb ramps installed along City streets;

d. Crosswalk and intersection improvements;

e. Rate of fatality or injury by age group;

f. Rate of fatality or injury by vehicle type;

g. Rate of fatality or injury by accident type and mode of transport, i.e. driver, passenger, pedestrian, cyclist;

h. Percentage of transportation projects taking place in census tracts identified by the vulnerable populations index;

E. *Training.* Training opportunities shall be provided to City Staff as appropriate to ensure the following components are utilized during the planning, funding, design, and implementation of projects: City of St. Louis Complete Streets Policy, City internal practices to implement the policy, and an overview of complete streets design principles including application of pedestrian and bicycle design guidelines. Training requirements are at the discretion of departmental or division supervisor or director and coordinated by the complete streets policy coordinator(s). (1994 C., § 3.120.010; Ord. No. 71882, §§ 1—6, 7-25-2024; Ord. No. 69955, §§ 2—5, 2-25-2015)

Editor's Note:

Ord. No. 69955, approved February 25, 2015, repealed Ord. No. 68663, §§ 1—4, approved June 22, 2010, codified as § 3.110.120; and enacted a new section as set out herein. Former § 3.110.120 pertained to similar subject matter.

3.110.130 Prevailing wage requirements.

A. For each public project for which the design team's estimated base value of the contract is seventy-five thousand dollars ($75,000.00) or more, contractors and subcontractors on such public projects employing workers on site who are engaged in demolition, preconstruction, construction, reconstruction, improvement, enlargement, alteration, painting and decorating or repair, shall comply with the following:

1. *Prevailing Wages Paid for Labor Hours of Employees.*

a. Each labor hour shall be paid at a rate that is no less than that of the area's standard prevailing wages as provided and determined under the mechanism described in RSMo 290.210—290.340, as such statutes exist as of the effective date of this chapter.

b. The rate to be used for this section is the prevailing wage rate determined and adjusted annually in the annual wage order at the time each relevant phase of demolition, preconstruction, construction, reconstruction, improvement, enlargement, alteration, painting and decorating or repair begins and not when an abatement, TIF, or City bond is granted.

c. Each contractor shall be ultimately responsible for the compliance of all its subcontractors.

d. Consistent with RSMo 290.235, such workers who are individually registered in a bona fide registered apprenticeship program approved by the U.S. Department of Labor, Office of Apprenticeship, may be paid less than the journeyperson rate of pay specified in the applicable wage order.

e. In compliance with RSMo 290.235, entry level workers may be registered apprentices.

f. The authorized apprenticeship utilization ratio shall be no greater than one-to-one, apprentice to journeyperson of the same classification unless Missouri's Prevailing Wage Law is amended to set a different ratio.

g. Any worker on a project covered by this section who is not registered as an apprentice or is out of ratio shall be paid as a journeyperson.

2. *Submission of Prevailing Wage Reports.*

a. Each contractor shall utilize compliance software and hardware to comply with the provision of this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended, as may be directed by SLDC.

b. Each contractor shall keep, and require each of its subcontractors to keep and make available to the contractor, a certified payroll report form per pay period, the format to be of the contractor's own choosing unless the project owner determines otherwise, indicating each worker's name, address, social security number, occupational title, hours worked, and wages paid of every worker employed on the contract or public project.

c. Each payroll report must be accompanied by a certification form indicating the accuracy and authenticity of such records, and signed by the contractor's or subcontractor's representative.

d. Information contained in such certification must incorporate the certification language required on the federal WH-347 payroll form, or its successor form as issued by the United States Department of Labor, but may be required by SLDC to be in electronic format.

e. Notwithstanding, the report shall also state the amount in any fringes in addition to wages received by each worker expressed as a per hour amount and the contractor shall provide information on the amount per hour of each benefit.

f. Each contractor shall submit such reports for public projects, including for any subcontractor, to SLDC on a monthly basis. Further, a contractor shall provide such reports to the BPS or SLDC upon request.

g. Such payrolls, records, and certifications shall be considered public records. In the event such payrolls or other records are requested under RSMo Ch. 610, the Missouri Sunshine Law, or other open records laws, all information pertaining to any and all workers listed on such payroll or records that may be closed, redacted, or otherwise removed pursuant to such laws shall be closed, redacted, or otherwise removed as provided under such laws. Examples include, but are not limited to, personal identification numbers, such as Social Security numbers. Such payrolls shall not be not considered individually identifiable personnel records as described in RSMo 610.021(13).

3. *Wages to be Posted.*

a. Each contractor shall post and keep posted, in a prominent and easily accessible place on site, a clearly legible statement of all prevailing hourly wage rates to be paid to workers employed by contractor and each of its subcontractors and how to report alleged violations of the same including the relevant contact information for SLDC.

4. *Affidavit of Compliance.*

a. Upon completion of the contract and prior to final payment, the contractor shall file with the City an affidavit of compliance from the contractor and each of its subcontractors stating that each has fully complied with the provisions and requirements of the Missouri Prevailing Wage Law and this chapter, Ordinance 69427 as amended, or Ordinance 71094 as amended.

b. The City shall not make final payment or implement or continue to authorize any tax abatement, frozen tax rate, or other benefit or incentive to encourage the applicable development project until the affidavits, in proper form and order, are filed by the contractor.

5. *Exception for Federal Requirements.* This section shall not be enforced in such manner as to conflict with any federal statutes or rules or regulation, including but not limited to 23 U.S. Code § 113, 29 CFR Part 5, 2 CFR § 200.319, and 23 CFR § 635.110.

6. *No Retaliation.*

a. An employer shall not take retaliatory personnel action or discriminate against an employee or former employee because the individual has reported to the City or to SLDC a violation of this chapter, Ordinance 70194, or Ordinance 69427; filed a related complaint with the City or with SLDC; participated in a related City or SLDC investigation; sought or received from the City restitution for wages owed to them as provided under this chapter; or assisted others in such conduct.

b. An employer which takes retaliatory personnel action or discriminate against an employee or former employee because the individual has reported to the City or to SLDC a violation of this chapter, Ordinance 70194, or Ordinance 69427; filed a related complaint with the City or with SLDC; participated in a City or SLDC investigation; sought or received from the City restitution for wages owed to them as provided under this chapter; or assisted others in such conduct shall pay to the City a penalty in the amount of five hundred dollars ($500.00) per impacted employee or former employee.

c. The City Counselor's Office shall have the authority for the enforcement and collection of such penalty.

d. To the extent allowed by law, penalties owed to and paid to the City under this subsection shall be used to enforce the prevailing wage requirements of this chapter and to provide workforce training and development services for minorities, women, apprentices, and City residents.

(Ord. No. 71962, § 6, 2-28-2025; Ord. No. 71094, 4, 2-7-2020.)

Chapter 3.115

TRANSPARENCY IN GOVERNMENT

Sections:

3.115.010	**Title.**
3.115.020	**Findings.**
3.115.030	**Definitions.**
3.115.040	**Recording public meetings.**
3.115.050	**Distribution of recording to the public.**
3.115.060	**Official YouTube Channel of the City of St. Louis.**
3.115.070	**Exceptions for closed meetings.**

3.115.010 Title.

This chapter shall be known as "The Transparency in Government Law." (1994 C., § 3.115.010; Ord. No. 69707, § 1, 3-26-2014.)

3.115.020 Findings.

It is hereby found, determined and declared by the Board of Aldermen of the City of St. Louis that pub-

licly available video recordings, audio recordings, or transcripts of public meetings promotes transparency and public trust in government. It also finds that publicly available video recordings, audio recordings, or transcripts promote civic engagement, especially amongst parents, workers, and the disabled who cannot physically attend public meetings. It also finds that video recordings, audio recordings, or transcripts may aid and improve judicial interpretation of legislation, and provide lawmakers, future and present, with valuable knowledge and history to make informed decisions on behalf of the people of St. Louis. (1994 C., § 3.115.020; Ord. No. 69707, § 2, 3-26-2014.)

3.115.030 Definitions.

A. Public Meeting: Any meeting at which public business is discussed, decided, or public policy formulated, whether conducted in person or by means of electronic communications equipment. "Public meeting" does not include informal gatherings of officials for ministerial or social purposes where there is no intent to avoid the requirements of this bill.

B. Closed Meeting: The portion of a public meeting that is not open to the public as provided for by RSMo 610.021.

C. Transcript: A written reproduction of the complete audio of a public meeting.

D. Video Recording: The electronic capture and storage of video and audio of a public meeting in a manner sufficient to enable review.

E. Audio Recordings: The electronic capture and storage of audio of a public meeting in a manner sufficient to enable review.

F. Website: The Internet location where the City of St. Louis posts official information for public access.

G. "Effective closed captioning" shall mean closed captioning that is simultaneous, accurate, and easily readable. (1994 C., § 3.115.030; Ord. No. 70875, § 2, 12-26-2018; Ord. No. 69707, § 3, 3-26-2014.)

3.115.040 Recording public meetings.

Any public meeting of the St. Louis Board of Aldermen, the Board of Estimate & Apportionment, and the Preservation Board shall be recorded by video in its entirety. A video recording shall include audio from the proceeding and effective closed captioning of recorded meetings and meetings that are broadcast live. Any public meeting of the Board of Public Service shall be recorded by audio or transcript in its entirety. (1994 C., § 3.115.040; Ord. No. 70875, §§ 1, 2, 12-26-2018; Ord. No. 70321, § 2, 7-14-2016; Ord. No. 69707, § 4, 3-26-2014.)

3.115.050 Distribution of recording to the public.

Any recording created under Section 3.115.030 of this chapter shall be made available free of charge on the official website of the respective body. Recordings shall be archived on the website and shall be accessible by the public for a minimum of ten (10) years after the date of the meeting. (1994 C., § 3.115.050; Ord. No. 69707, § 5, 3-26-2014.)

3.115.060 Official YouTube Channel of the City of St. Louis.

Any video recording created under Section 3.115.030 of this chapter shall also be made available on an official City of St. Louis channel on the video sharing website, YouTube (www.YouTube.com). This channel shall be maintained by the Communications Division. Videos shall be posted within three business days of the public meeting. All videos shall be viewable to the public with embedding capabilities activated so that citizens and news organizations can repost the videos on their own websites. (1994 C., § 3.115.060; Ord. No. 69707, § 6, 3-26-2014.)

3.115.070 Exceptions for closed meetings.

Except as otherwise required by law, no recording shall be created or distributed when a public meeting is deemed to be a closed meeting. If a public meeting is partially closed and partially open, the open portion shall be recorded and distributed in accordance with this bill. (1994 C., § 3.115.070; Ord. No. 69707, § 7, 3-26-2014.)

Chapter 3.120

CLEAN ENERGY DEVELOPMENT BOARD

Editor's Note:

In this chapter the PACE Act refers to the Property Assessment Clean Energy Act (RSMo 67.2800 et seq. (2016)).

Sections:

3.120.010	**Findings and determinations.**
3.120.020	**Creation of a Clean Energy Development Board.**
3.120.030	**Authority of the Clean Energy Development Board.**
3.120.040	**Terms of board members.**

3.120.050 Actions in accordance with the PACE Act.

3.120.060 Further authority.

3.120.010 Findings and determinations.

The Board of Aldermen hereby finds and determines that it is in the best interests of the City and the health, safety, and welfare of its residents to authorize the Mayor to appoint a Clean Energy Development Board to administer a PACE program within the City and to fund such PACE program through the receipt of grant funds, the issuance of bonds, and/or other financing mechanisms and funding sources, and make or cause to be made loans to property owners within the City to fund energy efficiency and renewable energy improvements to their property, which loans would be repayable from the savings in energy costs. (1994 C., § 3.120.010; Ord. No. 69056, § 1, 12-22-2011.)

3.120.020 Creation of a Clean Energy Development Board.

The creation of a Clean Energy Development Board, as set forth in the PACE Act, which shall hereinafter be known as the Clean Energy Development Board of The City of St. Louis, Missouri is hereby approved. The Clean Energy Development Board shall consist of five residents of the City of St. Louis appointed by the Mayor and approved by the Board of Aldermen. The Mayor is hereby authorized and directed to appoint said five members, with the advice and consent of said Board of Aldermen. (1994 C., § 3.120.020; Ord. No. 69056, § 2, 12-22-2011.)

3.120.030 Authority of the Clean Energy Development Board.

The Clean Energy Development Board is hereby authorized to exercise all powers which may be exercised by such boards pursuant to the PACE Act, as may be revised from time to time, and to adopt bylaws addressing the operations of the Clean Energy Development Board which are consistent with the PACE Act and this chapter. (1994 C., § 3.120.030; Ord. No. 69056, § 3, 12-22-2011.)

3.120.040 Terms of board members.

Of the Clean Energy Development Board members first appointed by the Mayor and approved by the Board of Aldermen, one (1) shall be designated to serve on the Clean Energy Development Board for a term of two (2) years from the date of appointment, two (2) shall be designated to serve on the Clean Energy Development Board for terms of three (3) years from the date of appointment, and the remaining two (2) shall be designated to serve on the Clean Energy Development Board for a term of four (4) years from the date of appointment; thereafter, each vacancy resulting from the expiration of a term shall be filled in the same manner as set forth above, and each person so appointed shall be appointed to serve on the Clean Energy Development Board for a term of four (4) years, except that the initial term of a person appointed to fill a vacancy resulting from the resignation, death or incapacity of a Clean Energy Development Board member during an unexpired term shall consist of the unexpired portion of such term. (1994 C., § 3.120.040; Ord. No. 69056, § 4, 12-22-2011.)

3.120.050 Actions in accordance with the PACE Act.

It is hereby recognized that the requirements of the PACE Act as pertain to the authority, number, qualifications, terms and manner of appointment of persons to serve on the Clean Energy Development Board may, from time to time, be revised. The Mayor and such other persons as may be directed to act with respect thereto under the PACE Act in the future are hereby authorized to act in accordance with the PACE Act, as from time to time revised, so that at all times hereinafter the Clean Energy Development Board shall be and remain legally authorized to exercise the powers of a Clean Energy Development Board under the PACE Act, without further action of the City, the Board of Aldermen, or the Clean Energy Development Board. (1994 C., § 3.120.050; Ord. No. 69056, § 5, 12-22-2011.)

3.120.060 Further authority.

The Mayor, the Comptroller, the Register, and other appropriate officials, agents, and employees of the City are hereby authorized to take such further actions and execute such documents as may be necessary or desirable to carry out and comply with the intent of this chapter, and to carry out, comply with and perform the duties of the City hereunder and under the PACE Act. (1994 C., § 3.120.060; Ord. No. 69056, § 6, 12-22-2011.)

Chapter 3.125

RESERVED

Editor's Note:

Ord. No. 72042, § 1, adopted October 30, 2025, amended the Code by repealing former Ch. 3.125, §§ 3.125.010—

3.125.080, which pertained to the Bond Oversight Committee, and derived from the 1994 Code, §§ 3.125.010—3.125.080; and Ord. No. 69757, adopted June 25, 2014.

Chapter 3.130

OFFICE OF FISCAL EMPOWERMENT

Sections:

3.130.010 Established.

3.130.020 Authority to apply for and accept grants and enter into service agreements.

3.130.030 Authority to enter into and execute sponsorship agreements.

3.130.010 Established.

The City Treasurer shall have the authority to establish the Office of Financial Empowerment ("OFE") as a division of the Treasurer's Office. The City Treasurer and the OFE shall have the authority to research, conduct educational programs, provide counseling and disseminate information regarding financial education, small business support and access to banking (for purposes of this section, collectively "financial programs") for residents of the City. The City Treasurer and the OFE are authorized to organize, administer and deliver financial programs either directly or through agents. (1994 C., § 3.130.010; Ord. No. 69809, § 1, 7-28-2014)

3.130.020 Authority to apply for and accept grants and enter into service agreements.

In furtherance of organizing, administering and delivering financial programs, the City Treasurer and the OFE shall have the authority to:

A. Apply for and accept on behalf of the City, grants; and

B. Enter into service agreements with public and private entities; and perform any and all acts, including the expenditure of funds subject to appropriation therefor, as shall be necessary or advisable in connection with such service agreements, including any renewals thereto;

C. Allocation of increase net position of Parking Division funds from prior years, notwithstanding or limiting any portion of the funds to be allocated to the City's General Fund, as designated in RSMo 82.485. (1994 C., § 3.130.020; Ord. No. 70057, § 2, 7-22-2015; Ord. No. 69809, § 2, 7-28-2014)

3.130.030 Authority to enter into and execute sponsorship agreements.

The City Treasurer and the OFE is authorized to enter into and execute sponsorship agreements, containing terms and conditions that she deems appropriate, in conjunction with the Treasurer's Annual Financial Empowerment Fair (for purposes of this section, "Fair"). For purposes of this section, the term "sponsor(s)" means those persons providing money or other in-kind goods or services to the City in exchange for advertising or promotional rights at the Fair. Sponsors may, at the discretion of the City Treasurer, and upon such terms as the City Treasurer determines, offer and sell goods and services to the public at the Fair. (1994 C., § 3.130.030; Ord. No. 69809, § 3, 7-28-2014)

Chapter 3.135

POET LAUREATE AND POET LAUREATE TASK FORCE

Sections:

3.135.010 Poet Laureate.

3.135.020 Poet Laureate Task Force—Membership and duties.

3.135.030 Same—Selection.

3.135.040 Effective date.

3.135.010 Poet Laureate.

The Poet Laureate shall be nominated to a two (2) year term and serve with the objective of:

A. Celebrating the written and spoken poetic voices of residents;

B. Increasing access to poetry throughout all parts of the community;

C. Encouraging both the reading and writing of literature;

D. Commemorating the City of St. Louis through works that speak to, for and of our region; and

E. Officiating special events upon request throughout the term.

(1994 C., § 3.135.010; Ord. No. 69879, § 1, 11-21-2014.)

3.135.020 Poet Laureate Task Force—Membership and duties.

There shall be six (6) member Poet Laureate Task Force to administer the selection of a qualified candidate. This Task Force shall:

A. Create an open nomination process;

B. Establish selection criteria for the evaluation of candidates; and, after considerable review;

C. Recommend a candidate for Board of Aldermen approval.

(1994 C., § 3.135.020; Ord. No. 69879, § 2, 11-21-2014.)

3.135.030 Same—Selection.

The Poet Laureate Task Force shall be selected as follows:

A. *Membership.* The Poet Laureate Task Force shall be comprised of a representative of the Mayor, a regional arts organization, a local institute of higher education, a resident with interest in poetry, a member of the regional business community and a representative of the President of the Board of Aldermen who shall serve as chair. Members shall be appointed by the chair with the advice of the Mayor and Board of Aldermen.

B. *Term of office.* Each member of the Poet Laureate Task Force shall serve a three (3) year term (except as provided herein with respect to the initial members), with terms expiring as of June 31 of the designated year or when their successors are appointed as provided herein, whichever is later.

C. *Initial members and terms.* The initial members shall be appointed for the terms set forth as follows: the chair shall be appointed for a term expiring June 31, 2017; two (2) members shall be appointed for a term expiring June 31, 2015; and two (3) members shall be appointed for a term expiring June 31, 2016.

D. *Removal.* The Mayor or President of the Board of Aldermen, with approval of the Board of Aldermen, may remove any member of the Poet Laureate Task Force for misconduct or neglect of duty.

E. *Mid-term vacancies.* Vacancies of the Poet Laureate Task Force or the Poet Laureate, occasioned by removal, resignation, expiration of term, or otherwise, shall be reported to the Mayor and the President of the Board of Aldermen by the Poet Laureate Task Force. The vacancy shall be filled at the recommendation of the chair no later than thirty (30) days after the date of said report. Appointments to fill vacancies shall be for the unexpired portion of a term only.

F. *Compensation.* The members of the Poet Laureate Task Force shall serve without compensation of any kind.

(1994 C., § 3.135.030; Ord. No. 69879, § 3, 11-21-2014.)

3.135.040 Effective date.

The Poet Laureate term shall commence on January 1, 2015.

(1994 C., § 3.135.040; Ord. No. 69879, § 4, 11-21-2014.)

Chapter 3.140

DIVISION OF CIVILIAN OVERSIGHT

Editor's Note:

Ord. No. 71749, § 1, adopted December 5, 2023, amended the Code by repealing former Ch. 3.140, §§ 3.140.010-3.140.110, and adding a new Ch. 3.140. Former Ch. 3.140 pertained to the Civilian Oversight Board, and derived from Ord. No. 71647, §§ 2—12, approved February 24, 2023.

Sections:

3.140.010	**Definitions.**
3.140.020	**Division of Civilian Oversight created.**
3.140.030	**Division of Civilian Oversight authority and duties.**
3.140.040	**Complaint system, case management, criminal justice information and annual/quarterly reports.**
3.140.050	**Budget, civilian oversight staff and investigators, office/meeting space.**
3.140.060	**Public Integrity Unit.**

3.140.070	**Creation of COB; reconstitution of DFOB; oversight work plans for COB and DFOB; COB and DFOB scope of work.**
3.140.080	**Members, qualifications and diversity of COB.**
3.140.090	**Appointment, term of office, removal, vacancy, no compensation.**
3.140.100	**Proceedings and officers for the COB.**
3.140.110	**DFOB reconstituted.**
3.140.120	**Member nominations, appointments, terms, vacancies and removals.**
3.140.130	**DFOB proceedings, officers and member orientation.**
3.140.140	**Additional scope of the DFOB.**

3.140.010 Definitions.

A. *Administrative rules violations inquiry* means investigation of alleged violations of administrative rules of police conduct of a minor administrative nature the pursuit of which is deemed by the Civilian Oversight Commissioner to be non-essential to the mission of the Division of Civilian Oversight and which, at the request of the Civilian Oversight Commissioner and with the agreement of the Commissioner of Police are referred to the Division of Police for investigation and disciplinary action as determined and initiated by the Commissioner of Police. If the Civilian Oversight Commissioner's referral of matters and inquiries are declined by either the Commissioner of Police or the Commissioner of Corrections, the reasons for declining shall be made in a writing to the Civilian Oversight Commissioner and Director of Public Safety. The Director of Public Safety shall assign the matter or inquiry to either the Civilian Oversight Commissioner or Police Commissioner.

B. *Annual oversight report* means the written reports by the COB and DFOB that describe the programs, initiatives, projects, and routine and ongoing tasks undertaken in the preceding fiscal year by the COB and DFOB to oversee and evaluate the Division of Civilian Oversight, Division of Corrections, Division of Police and other law enforcement and investigatory bodies as may be necessary. The annual oversight report shall be prepared and published by the COB and DFOB with the assistance of Civilian Oversight staff within one (1) year of the first meeting of each, with annual reports thereafter published not later than September 1 of each year. The annual oversight report shall set forth how each Board sought to make and made continuous progress in advancing their purposes, priorities, goals, timelines including but not limited to matters identified in the annual oversight work plan and the means of measuring (or grading) progress in the fiscal year just completed.

C. *Annual oversight work plan* means the written plans for programs, initiatives, projects, and routine and ongoing tasks in the forthcoming fiscal year by the COB and by the DFOB, each prepared with the assistance of the Civilian Oversight staff and setting forth each entity's purpose, priorities, goals, timelines and proposed means of achieving and measuring continuous progress in the fiscal year ahead. The COB and the DFOB shall for each annual oversight work plan invite, devise, and implement means reasonably calculated to elicit public input as to matters and initiatives that should be included in the coming year's annual work plan. The initial COB Work Plan and DFOB Work Plan shall be published within one (1) year of the first meeting of each, with annual plans thereafter published not later than July 1 each year.

D. *Civilian Oversight Commissioner* or *Commissioner* means, as provided herein, the head of the Division of Civilian Oversight in the Department of Public Safety and supervisor of Civilian Oversight investigators and Civilian Oversight staff. The Civilian Oversight Commissioner shall be an employee of the City of St. Louis in classified service appointed by the Director of Public Safety, with their performance during the six-month working test period evaluated by the Director of Public Safety and be removable during their term only by the Director of Public Safety for cause. Subject to the qualifications determined by the Director of Personnel and/or the Civil Service Commission, such qualifications for the Civilian Oversight Commissioner shall include substantial experience successfully conducting complex criminal, employment and/or ethics investigations, either as a licensed attorney or public sector professional investigator. In order to prevent real or perceived conflicts of interest, and subject to the qualifications determined by the Director of Personnel and/or the Civil Service Commission, the Civilian Oversight Commissioner shall have no history of employment as a police officer.

E. *Civilian Oversight investigators* or *investigators* means professional investigative staff, assigned by or subject to the approval of the Civilian Oversight Com-

missioner, who, under the direction of the Civilian Oversight Commissioner, shall conduct professional standards inquiries and required to complete all necessary trainings related to their inquiries. Civilian Oversight investigators, in addition to being civilian employees of the Division of Civilian Oversight hired in accordance with Civil Service rules and personnel regulations, may in the discretion of the Civilian Oversight Commissioner include commissioned officers temporarily detached from the Division of Police, and civilian employees detached from other City departments, and other personnel approved by the Civilian Oversight Commissioner in accordance with Civil Service Rules and Personnel Regulations. Subject to the qualifications determined by the Director of Personnel and/or the Civil Service Commission, non-detached civilian oversight investigators shall have a limited history of employment as a police officer, with no history of employment as a police officer within the four (4) years immediately prior to the employee's start date. Currently commissioned SLMPD officers may only be detached and assigned to the Division of Civilian Oversight following review for conflicts of interest by the Civilian Oversight Commissioner, and approval by the Director of Public Safety, and in no case may the total number of detached police officers be more than thirty-five (35) percent of the total number of civilian employees of the Division of Civilian Oversight. Subject to appropriation, there shall be staffing of a minimum of one (1) Civilian Oversight investigator for every one hundred (100) commissioned police officers and every eighty (80) corrections officers. The Civilian Oversight Commissioner shall adopt rules and procedures for each investigatory matter reasonably calculated to identify and determine the existence of conflicts of interest that might disqualify a Civilian Oversight investigator from being assigned to or continue participation in a matter. For Civilian Oversight investigators detached from the Division of Police or other agencies and temporarily assigned pursuant to an MOU or written contract, the MOU or contract shall specify that investigators shall operate under the direction and supervision of the Civilian Oversight Commissioner for all matters relating to their investigative duties while detached to the Division of Civilian Oversight. The lead investigator on every Professional Standards Inquiry shall be a non-detached Civilian Oversight investigator with no history of employment as a police officer. Detached police officers shall not constitute more than thirty-five (35) percent of a given investigative team tasked with conducting a Professional Standards Inquiry. Civilian oversight investigators shall respond to the scene of Police and Correctional Incidents. Subject to the requirement of state law then in effect, Civilian Oversight investigators shall have authority to collect statements from witnesses and city employees upon request except that, where Civilian Oversight investigators request statements from law enforcement officers under administrative investigation or from law enforcement officers who reasonably believe that administrative questioning could lead to disciplinary action, demotion, dismissal, transfer, or placement on a status that could lead to economic loss, such statements shall be requested and obtained in accordance with and subject to state law then in effect.

F. *Division of Civilian Oversight* is a division of the Department of Public Safety, subject to the terms of this chapter, to civil service rules and regulations, and to all applicable federal and state laws and city ordinances. The Division of Civilian Oversight shall be directed by the Civilian Oversight Commissioner and supported by the Civilian Oversight staff and Civilian Oversight investigators, which investigators shall conduct professional standards inquiries and which staff shall assist and support the disciplinary, oversight and policy authority and duties of the COB and DFOB.

G. *Civilian Oversight staff* or *staff* means staff providing oversight, policy, disciplinary, administrative and technical support to the Civilian Oversight Commissioner, Civilian Oversight investigators, COB and DFOB under the direction of the Civilian Oversight Commissioner, and subject to oversight by the COB or the DFOB, as provided in this chapter. Subject to appropriation and Department of Personnel classification qualifications and specifications, Civilian Oversight staff shall include employees tasked with producing policy research and recommendations, supporting surviving families, conducting community outreach, providing administrative support to investigators, COB and DFOB, and liaising with the Personnel Department to file the requisite documentation to execute discipline including but not limited to suspensions, reductions in pay, demotions, forced leave and termination.

H. *City* shall mean the City of St. Louis.

I. *Commissioner of Police* shall mean the head of the Division of Police whether otherwise referenced as Police Commissioner or Chief of Police or their designee.

J. *Complaints* means a request to review and investigate allegations of a police incident, police professional misconduct, a detention incident or corrections professional misconduct, as defined herein. Complaints must be supported by a written statement. The complaint must outline the alleged acts or omissions complained of. To the fullest extent permitted by law, Civil Service Rule or Regulation, and subject to the confidentiality and non-interference provisions set forth in this chapter, all complaints shall be immediately shared with the Civilian Oversight Commissioner. Additionally, all complaints relating to the employees of the Division of Police shall be timely shared with the COB and Police Chief within forty-eight (48) hours, and all complaints pertaining to detention facilities, including internal resolution requests, shall be timely shared with the DFOB and Corrections Commissioner within forty-eight (48) hours.

1. Anonymous complaints can be accepted and processed in accordance with the same procedures as written and signed complaints, and may be submitted by any member of the DFOB or the Commissioner of the Division of Civilian Oversight; however, no such findings or recommendations shall be based solely on anonymous complaints. Anonymous complaints may be accepted only for complaints related to employees of the Division of Corrections.

K. *Corrections Commissioner* means the head of the Division of Corrections of the Department of Public Safety.

L. *Complainant* means persons who submit a complaint to the Division of Civilian Oversight or to the COB or DFOB regarding or arising out of a police incident, police professional misconduct, detention incident or corrections professional misconduct.

M. *Corrections professional misconduct* means acts or omissions of employees that violate federal or Missouri state criminal statutes, federal and Missouri state statutes and regulations and City ordinances governing detention facilities and conditions of detention, Division policy or professional standards that may result in disciplinary action. Corrections misconduct also includes, without limitation, employee acts or omissions that result in or contribute to detainees' unjustified denial of medical treatment for a physical injury or acute or chronic medical condition, death or serious physical injury of a detainee including those related to suicide or suicide attempt, use of excessive force, verbal or physical harassment, or failure to promptly intervene in or report occurrences of corrections misconduct or detention incidents.

N. *Detainee* means an individual who is awaiting sentencing on pretrial proceedings that has not been convicted of a crime, or has been convicted of a crime and is awaiting sentencing, or serving a sentence for a conviction, or an individual who has been charged with a crime and awaiting trial, or an individual awaiting a determination of a or revocation of parole that is being held in a detention facility.

O. *Detention facility* means any jail, detention or correctional facility owned or operated by the City, or any jail, detention or correctional facility owned or operated by another party where detainees are housed for the City.

P. *Division of Corrections* means the City of St. Louis Corrections Division.

Q. *Detention incident* means corrections misconduct and any of the following: assault, sexual assault, and sexual harassment, as these terms are defined in Missouri state statute or City ordinance and are deemed reportable incidents pursuant to national best practices for reportable incidents, of detainee by an employee; the death or serious injury of a detainee; the death or serious injury of an employee; accidental injury of a detainee which requires medical treatment; arson or the occurrence of a fire in a detention facility; hostage situation; use of force by an employee the that results in injury to a detainee that requires medical care; actions by City of St. Louis Sherriff's Office Emergency Response Team member that results in an injury to a detainee that requires medical treatment; a detainee medical emergency that requires a response from the detention facility's medical personnel, outside medical professional, or emergency responder; the emergency transport of a detainee to an outside medical facility; excessive or abusive use of solitary confinement.

R. *DFOB* means the Detention Facility Oversight Board re-established by this chapter with the specified mission, duties, and the authorities for their execution.

S. *Excessive force* means physical force applied by Division of Police employees beyond that which is reasonably necessary to accomplish their lawful purpose while safeguarding their own lives and the lives of others and physical force applied by Division of Corrections employees beyond what is reasonably necessary to control a detainee or arrestee or safeguard their own lives and the lives of others.

T. *Public Integrity Unit* means a special unit which, as provided in a memorandum of understanding agreed upon by the Director of Public Safety and Circuit Attorney, and, subject to enabling appropriations commands and conducts the investigations heretofore undertaken by the Force Investigation Unit of the Division of Police. Upon enactment of this chapter and formation of the Public Integrity Unit, the Force Investigations Unit of the Division of Police shall be dissolved, subject to the period of transition set out in Section 3.140.110, which may include transfer or reassignment of ongoing cases.

U. *Oversight* and *oversee* shall mean authority provided hereunder to the COB and to the DFOB to timely obtain reports and information from, and to observe, evaluate and make recommendations concerning the work of the Division of Civilian Oversight, Division of Corrections, Police Department, and other law enforcement and investigatory bodies as may be necessary regarding professional standards inquiries, alleged police professional misconduct, alleged police incidents, alleged corrections professional misconduct and detention incidents, and to obtain information and evaluate and make recommendations on such other matters concerning which the COB or DFOB may reasonably inquire.

V. *Division of Police* and *Police Department* means the Division of Police of the Department of Public Safety, City of St. Louis.

W. *Police incident* means alleged police professional misconduct as well as any of the following: Death or serious injury of a member of the public allegedly as a result of interaction with a police officer; death or serious injury of a police officer or third party, occurring in the course of their duties; intimate partner violence allegedly by a police officer; accidental serious injury of any person in police custody where the injury results in medical treatment; use of force by a police officer (or their canine agents) that results in injury requiring medical care; any police vehicular pursuit of a fleeing suspect that results in serious physical injuries; regardless of actual injury, lethal force directed at a citizen by a police officer, shall be considered a police incident.

X. *Police officer* means a state or local law enforcement officer with the power of arrest for a violation of the criminal code. This does not include individuals in local and state law enforcement agencies in non-officer positions, or federal law enforcement, such as Department of Justice or Federal Bureau of Investigations officers, nor prosecuting authorities at any level.

Y. *COB* shall mean the Civilian Oversight Board and the nine (9) members appointed pursuant to this chapter as a reconstituted Civilian Oversight Board with expanded powers and jurisdiction, and in compliance with RSMo 590.653.

Z. *Police professional misconduct* means acts or omissions by Division of Police employees alleged to be in violation of criminal law or ordinance or professional standards the violation of which is subject to disciplinary punishment, including but not limited to misconduct which constitutes or contributes to excessive use of force, abuse of authority (including failure to appropriately and timely intervene in or report police professional misconduct of another), property damage, discourtesy, or use of offensive language, including, but not limited to, slurs relating to race, ethnicity, religion, gender (including gender identity) sexual orientation and disability.

AA. *Professional standards inquiries* means administrative/disciplinary investigations conducted by Civilian Oversight investigators into complaints and allegations of detention incidents, police incidents, corrections professional misconduct and police professional misconduct and to assist the Civilian Oversight Commissioner in the coordination and implementation of discipline and related corrective employment action in compliance with civil service rule and/or personnel regulation, along with rules or special orders, as may be applicable, and to conduct the administrative review of shots fired by employees of the Division of Police or Division of Corrections and deadly use-of-force incidents for compliance with applicable professional standards, policies and codes of conduct. Professional standards inquiries shall automatically be made into, and Civilian Oversight investigators shall respond to the scene of, all discharges of firearms or use of force, on or off duty, by officers and armed employees of the Division of Police or Division of Corrections who discharge firearms or engage in such force within the City, in which a person was struck or otherwise results in serious physical injury.

(Ord. No. 71749, § 2, 12-5-2023.)

3.140.020 Division of Civilian Oversight created.

There is hereby established a division of the Department of Public Safety to be known as the Division

of Civilian Oversight, which shall be directed by the Civilian Oversight Commissioner and have two (2) units: Civilian Oversight investigators and the Civilian Oversight staff, each of which shall be directed and supervised by the Civilian Oversight Commissioner. The Civilian Oversight Commissioner shall have such authority as is granted under this chapter, including the authority to initiate professional standards inquiries and including, subject to all applicable rules and regulations of the Department of Personnel and the Civil Service Commission, the authority to take disciplinary action against employees of the Police Department and Corrections Division. The Division of Civilian Oversight shall have access to records prepared for disciplinary purposes as set forth herein, except that such access is contingent upon the Civil Service Commission passing rules or regulations granting the Division of Civilian Oversight authority to conduct investigations regarding disciplinary matters. Records compiled as a result of any investigation pursuant to this chapter shall not be disclosed where such disclosure would violate any state or federal law then in effect.

Purpose. The purpose of the Division of Civilian Oversight is: to protect the safety of the public and employees of the City; to strengthen the integrity of and public confidence in criminal justice institutions; to promote transparency, fairness and public accountability to professional standards by the Division of Police and Division of Corrections; to conduct thorough, impartial, and independent professional standards inquiries into alleged police professional misconduct, alleged police incidents, alleged corrections professional misconduct, alleged detention incidents; to support survivors of police and correctional incidents and misconduct and their families; to serve as successor and to subsume certain functions of both Police and Corrections Internal Affairs Divisions in such matters with expanded authority that includes Division of Corrections matters; to facilitate, promote, and encourage constant improvement in the operations and professionalism of the Division of Police and Division of Corrections by empowering independent citizen boards to render impartial and informed oversight, and develop policy recommendations and advice that will address systemic problems and practices in police and corrections operations; and as regards detention facilities, to ensure such operations and conditions of confinement are safe, sanitary and respectful of detainees' and the public's rights and dignity, and protect the health and safety of the public, detainees and Division of Police and Division of Corrections employees.

Overview of investigative functions. To effect and advance the purposes herein stated, the Division of Civilian Oversight, its Civilian Oversight Commissioner and Civilian Oversight investigators and staff shall, as provided herein, be broadly authorized to independently investigate, conduct, and oversee the investigatory matters defined as professional standards inquiries. They shall do so for the purposes therein stated, namely, to determine compliance or violation by Division of Police and Division of Corrections personnel of rules governing professional standards and conduct. The scope and particulars of the matters out of which such inquiries may arise shall include but not be limited to the matters stated in the definitions of police incidents, detention incidents, police professional misconduct and detention professional misconduct. To promote and ensure diligent consideration and pursuit of all complaints, as that term is defined herein, the Division of Civilian Oversight, its Civilian Oversight Commissioner and the Civilian Oversight investigators and staff shall be obligated to not dismiss or deny any written complaint without first conducting reasonable inquiry. Further, certain events or occurrences because of their extraordinary nature, shall automatically be the subject of professional standards inquiry, as provided therein, namely, those involving police or corrections personnel's discharge of firearms, or other uses of force that lead or contribute to serious injury, or death of any person, as well as the death of any person from any potential cause in a detention facility or in police custody. Finally, while working in consultation with the COB and DFOB, the Division of Civilian Oversight, the Civilian Oversight Commissioner, Civilian Oversight investigators and Civilian Oversight staff shall have broad authority to examine and evaluate Division of Police and Division of Corrections policies, procedures, and operations, including police incidents and detention incidents, in the public interest and for purposes of recommending improvements and reforms.

(Ord. No. 71749, § 3, 12-5-2023.)

3.140.030 Division of Civilian Oversight authority and duties.

A. The Division of Civilian Oversight, under the direction of the Civilian Oversight Commissioner, shall have the authority and duty to:

1. *Promulgate rules and procedures for conducting inquiries.* In consultation with the Commissioner of Police, Commissioner of Corrections, Civilian Oversight Board, Personnel Director and Circuit Attorney, and subject to approval by the Director of Public Safety, develop publicly available rules and procedures for conducting professional standard inquiries into police incident, police professional misconduct, detention incidents, and corrections professional misconduct. These rules and procedures shall include, but not be limited to:

a. Rules and procedures providing for the immediate notification of the Civilian Oversight Commissioner, Director of Public Safety, Circuit Attorney, and Police Commissioner or Corrections Commissioner, and their respective designees, that a police incident or detention incident has occurred or a complaint about such an incident is filed.

b. Rules and procedures governing the use of body cameras by police and correctional officers, investigators, and other law enforcement personnel.

c. Rules and procedures establishing a conflict of interest policy to determine the existence of a conflict of interest, real or perceived, that disqualify the participation of a person in an investigation.

d. Rules and procedures for the COB and DFOB to recommend to a complainant, Civilian Oversight Commissioner, Commissioner of Police or the Commissioner of Corrections, and the police officer or corrections officer that is the subject of the complaint, that a complaint be resolved by mediation if the Civilian Oversight Commissioner, the Commissioner of Police or Commissioner of Corrections, complainant and the police officer or corrections officer that is the subject of the complaint agree to mediation.

2. *Conduct professional standards inquiries.* Respond to the scene of police and corrections incidents as provided for in a memorandum of understanding between the Director of Public Safety and Circuit Attorney of the City of St. Louis. Receive complaints and, in consultation with the Director of Public Safety, Circuit Attorney, Commissioner of Police and Commissioner of Corrections, and excepting administrative rules violations inquiries, conduct professional standards inquiries into police incidents, police professional misconduct, detention incidents, and corrections professional misconduct, and/or subject to such rules and regulations as the Director of Personnel and Civil Service Commission may prescribe, impose or refer matters for professional discipline for violations of professional standards and disciplinary rules. Subject to the requirements of state law then in effect, City employees involved in or witness to alleged police or correctional incidents or misconduct shall provide a statement to civilian oversight investigators upon request except that, where civilian oversight investigators request statements from law enforcement officers under administrative investigation or from law enforcement officers who reasonably believe that administrative questioning could lead to disciplinary action, demotion, dismissal, transfer, or placement on a status that could lead to economic loss, such statements shall be requested and obtained in accordance with and subject to and under all conditions required by state law then in effect.

3. *To take disciplinary action.* The Civilian Oversight Commissioner, upon consultation and in consideration of recommendation by the Commissioner of Police or Commissioner of Corrections, shall have the authority and power, subject to civil service rule, to take disciplinary action against employees of the Division of Police and Corrections Division, subject to and in accordance with all applicable Department of Personnel rules or regulations, including the Civil Service Commission appeal and review process. Notwithstanding the foregoing, and pursuant to RSMo 84.344.8, exclusive authority over the disciplinary process and procedures affecting commissioned officers is reserved to the Civil Service Commission. Furthermore the Commissioner of Police and Commissioner of Corrections will retain the power to discipline their employees as conferred by Civil Service Rules currently in effect. Any claimed conflict between disciplinary action initiated by the Civilian Oversight Commissioner and Commissioner of Police or Corrections shall be preliminarily determined by order of the Director of Public Safety and may be appealed by any Commissioner to the Civil Service Commission.

4. *Access to information.* Except as prohibited by federal or state law, and as provided for under Section 3.140.030.C herein, the Civilian Oversight Commissioner shall have original subpoena power and access to any and all information related to their purpose as set

forth in Section 3.140.020 herein. Additionally, the Civilian Oversight Commissioner shall assist the Civilian Oversight Board and Detention Facilities Oversight Board in obtaining access to information including but not limited to the records and documents detailed in Section 3.140.070.C herein. All law enforcement officials shall provide the Civilian Oversight Commissioner access to, or shall assist them in obtaining access to, any and all information as may be required in order to fulfill their responsibilities and purpose under this chapter.

5. *Support the COB and DFOB.* Provide support to the COB and DFOB in timely investigating, providing information and access to information to the COB and DFOB as provided herein, and work to assist and support the COB and the DFOB in their preparation and execution of the annual oversight work plans and annual oversight reports.

6. *Share information.* Except as prohibited by federal or state law and except for compelled statements under Garrity v. New Jersey, 385 U.S. 493 (1967), to share investigative information from the Public Integrity Unit to the Division of Civilian Oversight consistent with best practices in criminal investigation and professional standards.

7. *Recommend improvement and reforms.* In consultation with COB, DFOB and with input from members of the public the Civilian Oversight Commissioner shall have the authority and duty to propose or recommend adoption, revision or modification of Division of Police or Division of Corrections policies, procedures and operations. The Police Commissioner and Corrections Commissioner shall provide responses in writing to such recommendations within sixty (60) days of the recommendation being submitted.

8. *Provide timely assistance and information to surviving families.* In consultation with the Director of Public Safety, City Counselor, Circuit Attorney, and Police Commissioner, the Civilian Oversight Commissioner shall have the authority and duty to provide timely assistance and information to surviving families in cases of death or serious bodily injury arising from an alleged police incident or an alleged corrections incident, consistent with investigative needs as determined by the Civilian Oversight Commissioner, Director of Public Safety, Police Commissioner, Circuit Attorney and City Counselor and as permitted by law, including that:

a. The family, through any immediate known next of kin of the deceased or seriously injured, is promptly notified within three (3) days upon verification of the identity of the decedent;

b. The family of a deceased or seriously injured person, through known immediate next of kin, is promptly notified within three (3) days of the location of the deceased's body and given access to the body or injured person as soon as practicable, while complying with existing law(s);

c. The incident giving rise to the death or serious bodily injury is subject to an independent, impartial and comprehensive investigation;

d. The family of the deceased or seriously injured individual, through known immediate surviving next of kin, is given access to written reports, footage, and other public records relating to the incident at least twenty-four (24) hours before they are shared with the public, opened or become open records under the Missouri Sunshine Law; As appropriate and permitted by law, the Division of Civilian Oversight shall proactively provide updates to the family of the deceased or seriously injured individual on the status of the inquiry. Any updates involving an active criminal investigation or case shall be made in consultation with the Circuit Attorney;

9. *Grant funding.* On behalf of and at the request of and in consultation with the COB and DFOB, the Division of Civilian Oversight may seek grant funding concerning any matter, issue, or undertaking within the purposes and missions of the COB or DFOB.

10. *Semi-annual meetings.* Meet with the Mayor on a semi-annual basis, and Public Safety Committee of the Board of Alderman on an annual basis, or more frequently at the request of the Board of Aldermen or the Mayor, to discuss and hear public testimony on topics relevant to the purpose of the Division of Civilian Oversight. The minutes of each meeting will be posted online promptly and not later than within ten (10) days following such meeting.

11. *Status reports to complainants.* Provide timely updates and notifications to complainants as to the status of their complaints, including final findings upon the closure of the investigation.

B. *Non-interference.* No administrative or disciplinary investigation activity of the Division of Civil-

ian Oversight, including the activities of the COB or the DFOB, shall interfere with any criminal investigation or civil litigation. Any claimed conflict between the Division of Civilian Oversight Professional Standards Inquiry and Division of Police criminal investigation, or Public Integrity Unit investigation including allegations of interference with the performance of police duties, shall be determined and resolved by order of the Director of Public Safety. When the Civilian Oversight Commissioner is notified by the Director of Public Safety, Circuit Attorney or City Counselor or Commissioner of Police that an investigation may interfere with a criminal investigation or civil litigation involving the City, the Civilian Oversight Commissioner shall avoid such interference by taking such steps as may be required by the Director of Public Safety, up to and including staying the potentially interfering Professional Standards Inquiry until such time as it will not interfere with other authorities or courts with jurisdiction over the matter or with the criminal investigation or civil litigation. Any such stay shall be reported to the COB or DFOB, depending on whether the incident or misconduct pertains to police or corrections. Details regarding the rationale for such stays shall also be reported to the COB and DFOB as permitted by law. As to civil litigation matters, not later than every one hundred eighty (180) days after such notification, the City Counselor shall provide an update in writing of the status of the request that such potentially interfering investigation continued to be stayed and the reasons supporting the continued stay.

a. To the extent permitted by law, the Police Commissioner, City Counselor, or Circuit Attorney, as applicable, shall make an appearance, or arrange for staff to appear, before the COB and/or DFOB at least once a month or issue a report in writing to the chairperson of either respective board to provide an update on any criminal investigations or civil litigation concerning individuals mentioned in complaints received by City agencies. This report should specifically cover conflicts that have led to a suspension of their investigative responsibilities.

C. *Subpoena power.* In the course of any investigation conducted under the provisions of this chapter, the Civilian Oversight Commissioner shall have the power to administer oaths, to subpoena and require the attendance of witnesses within the City, including custodians of records for private and corporate entities conducting business within the city, and the production by them of books, papers, videos, medical records, phone and internet records, bank records, and other records or documents of any description in any medium pertinent to any matter of inquiry and to examine such witnesses under oath, in relation to any matter properly involved in such proceeding. The Civilian Oversight Commissioner shall also administratively support the COB and DFOB in their exercise of their independent subpoena power pursuant to a majority vote of the COB or DFOB. In accordance with the process set out in this chapter, the Civilian Oversight Commissioner shall issue appropriate subpoenas requiring the production of books, papers, videos, medical records, phone and internet records, bank records and any other records requested by COB and/or DFOB and compelling the attendance of witnesses to provide testimony under oath before the requesting oversight boards. In the event one (1) or more members of the COB or DFOB are unavailable or unable to participate in the properly noticed meeting at which a vote to exercise the power of subpoena is taken, the vote shall be taken among those members who are available and able to participate in a vote and such power shall be exercised by the Civilian Oversight Commissioner on a vote of majority of those members who participate, so long as at least six (6) members are present to constitute a quorum. For all such purposes, the Civilian Oversight Commissioner or their authorized representative may invoke the power of any court of record in the City, or judge thereof, in term time or vacation, to compel the attendance and testimony of witnesses including custodians of records for private and corporate entities conducting business within the City, and the production by them of books, papers, videos, medical records, phone and internet records, bank records or any other records, in compliance with such subpoenas. Every such writ of subpoena shall be signed by the Civilian Oversight Commissioner or their designee, and except in the case of subpoenas issued by the DFOB or COB, shall be attested to by the lead Civilian Oversight investigator assigned to the matter that is the subject of the subpoena and shall be served and the return thereof made by any means allowable under applicable law. All witnesses so subpoenaed, who are not employees of the City, shall be entitled to the same fees as are allowed in civil cases in courts of record.

D. *Confidentiality.* The Division of Civilian Oversight, COB and DFOB and Civilian Oversight staff and Civilian Oversight investigators shall when re-

quired by law, ordinance or Civil Service Commission rule maintain the confidentiality of any file, record, or data received pursuant to their official duties and be bound by rules of confidentiality including with respect to any personnel, disciplinary, and other confidential documents that they review. In addition to any penalties otherwise provided by law it shall be a violation of this chapter for anyone employed by or assigned to the Division of Civilian Oversight or COB or DFOB to disclose confidential information to anyone other than another assigned to or employed by the Division of Civilian Oversight or COB or DFOB, Civilian Oversight staff, Civilian Oversight investigators, the City Counselor's office, the Mayor or their designees, the Director of Public Safety or the Director of Public Safety's designees, Circuit Attorney or their designees or authorized Division of Police or Corrections Division personnel. In addition to any other remedies provided by law, any person who is found to have engaged in or facilitated such unlawful disclosure and to have released confidential information to any person unauthorized to receive such information may immediately be disqualified from serving on the COB or DFOB or to continue employment by the Division of Civilian Oversight. If the Division of Civilian Oversight, or COB or DFOB have any questions pertaining to the Sunshine Law or confidentiality, they must contact the City Counselor and must act according to legal advice provided by the City Counselor or special counsel procured by the City Counselor. If there is any question concerning the confidential nature of a document or information, such question must be resolved in favor of the document or information as confidential until City Counselor or special counsel retained by the City Counselor instructs otherwise.

E. *Internal special counsel.* The City Counselor's Office shall specially designate an attorney working within the City Counselor's Office to manage legal matters pertaining to the Division of Civilian Oversight and its Boards. Consistent with the City Charter, the City Counselor shall be the head of the law department and maintain supervisory authority over the internal special counsel. Internal special counsel shall not disclose information pertaining to complaints of alleged misconduct and incidents received by the Division or its Boards, investigations by the Division or its Boards, or related findings and recommendations to the attorneys within the City Counselor's Office designated to manage legal matters pertaining to the SLMPD or Corrections Division. Internal special counsel shall not maintain documents associated with such legal matters in a workspace shared with attorneys other than the City Counselor or special external counsel procure as a result of a request by the Civilian Oversight Commissioner. Attorneys within the City Counselor's Office designated to manage legal matters pertaining to the SLMPD or Corrections Division shall not have access to information maintained by the internal special counsel, except to the limited extent the City Counselor finds it necessary and approves the same; for example, to comply with state or local law regarding non-interference, to provide advice or representation in connection with personnel matters, or to defend the City or its entities against legal claims and litigation. Any limited sharing of information approved by the City Counselor will be permitted only for a limited and lawful purpose.

F. *External special counsel.* Subject to appropriation and notwithstanding other provisions herein regarding the Sunshine Law, the Civilian Oversight Commissioner may on their own initiative and shall upon recommendation from the COB or DFOB, request that the City Counselor retain external special counsel to advise the Division of Civilian Oversight and/or its Boards. The City Counselor may, subject to the requirements of City Code Section 3.10.050, retain said external special counsel. Consistent with the City Charter, the decision to retain and select external special counsel is exclusively vested in the sound discretion of the City Counselor. The City Counselor shall communicate the rationale for any decision not to procure external special counsel to the Civilian Oversight Commissioner in writing within thirty (30) days. If the City Counselor grants approval for external special counsel, they shall furnish the board with a list of attorneys from which the board may make its selection. This list shall be provided in writing to the Commissioner along with the requesting board within thirty (30) days of the written request to the City Counselor. If no such list is provided within thirty (30) days, the Commissioner shall, in consultation with either respective board and upon a final majority vote of either board, assess the necessity to enter into a professional service contract in accordance with the requirements of City Code Chapter 3.97 for the purpose of legal services. External legal service providers acquired through a professional service contract are authorized solely to offer legal advice to either respective board.

(Ord. No. 71749, § 4, 12-5-2023.)

3.140.040 Complaint system, case management, criminal justice information and annual/quarterly reports.

A. *Complaint system.* The Division of Civilian Oversight in consultation with the COB, DFOB, Commissioner of Police, Commissioner of Corrections and the City Counselor shall develop systems for receiving, processing, and administering complaints including the creation and utilization of a single, standardized complaint intake form, and coordinate with the Division of Police, the Division of Corrections, the COB and the DFOB to implement the system. All complaints, including Internal Resolution Requests, no matter where received, shall be provided in a timely manner to the Division of Civilian Oversight and to the appropriate oversight board. No written complaint shall be dismissed or denied without first conducting reasonable inquiry.

B. *Standard complaint form.* The complaint form shall be written in clear language and with the intention of aiding readers' comprehension and understanding of the complaint form and complaint process, including through multi language translations.

C. *Case management system.* The Division of Civilian Oversight shall, in consultation with the Director of Public Safety, Circuit Attorney, COB, DFOB, Commissioner of Police, Commissioner of Corrections and City Counselor, adopt or develop a case management system for complaints and matters that are the subject of investigations, which shall include a system for classifying different types of complaints, protocols for investigating complaints and incidents, monitoring investigations, and ensuring the information is timely and appropriately shared from the Public Integrity Unit to the Division of Civilian Oversight. Information may not be shared between Division of Civilian Oversight and the Public Integrity Unit where prohibited by state of federal law then in effect, and information protected under Garrity v. New Jersey, 385 U.S. 493 (1967) shall not be shared from the Division of Civilian Oversight to the Public Integrity Unit and shall be held confidential in accordance with all applicable law to protect the integrity of any subsequent criminal prosecution.

D. *Criminal justice information.* The Division of Civilian Oversight shall consult with the COB, DFOB, Commissioner of Police and Commissioner of Corrections and representatives of the Regional Justice Information System (REJIS) Commission to ensure that it is organized and provides such training and institutes such controls as may be required for Civilian Oversight investigators to obtain and at all times retain access to and good standing under protocols and regulations governing shared criminal justice information.

E. *Annual accountability report.* The Division of Civilian Oversight shall prepare an annual report and, after review and comment by the COB and DFOB, address it to the Mayor, Board of Aldermen, and Chairperson of the Public Safety Committee and present it at a public meeting, and invite public comment at least thirty (30), but no more than sixty (60) days prior to the end of each fiscal year. The annual report shall be published online simultaneously with its submission. The annual report shall contain the following:

1. A list of completed investigations by the Division of Civilian Oversight that resulted in sustained charges or discipline which includes a general description of the sustained charge, the disciplinary action taken, and a statistical summary of completed investigations that resulted in sustained charges or discipline. Individually identifiable employee, victim, or witness information shall not be included in the annual report and no information shall be included in the annual report that would render the report a closed record under state or federal law then in effect.

2. Reports on any matter properly within the scope of the Division of Civilian Oversight's, COB's or DFOB's purpose, authority or duties as may be requested by the Mayor, Board of Aldermen and Chairperson of the Public Safety Committee.

3. Reports regarding any matter properly within the scope of the Division of Civilian Oversight's purpose and duties and that the Division of Civilian Oversight may deem appropriate.

4. A statement of the Division of Civilian Oversight rules, policies and procedures for its investigative and monitoring activities.

F. *Quarterly reports.* The Division of Civilian Oversight shall compile a summary report for each quarter and shall submit copies of the report to the Mayor, Board of Aldermen and Chairperson of the Public Safety Committee. Quarterly reports shall cover the preceding quarter and must be submitted to the Mayor, Board of Aldermen and the Chairperson of the Public Safety Committee and simultaneously posted online within ten (10) days of the end of the quarter. Quarterly reports shall contain the following:

1. A list of completed investigations by the Division of Civilian Oversight that in the preceding quarter

resulted in sustained charges or discipline which includes a general description of the sustained charge, the disciplinary action taken, and a statistical summary of completed investigations that resulted in sustained charges or discipline. Individually identifiable employee, victim, or witness information shall not be included in the annual report and no information shall be included in the annual report that would render the report a closed record under state or federal law then in effect.

2. A list of all investigations that were concluded during the quarter and summaries of the related investigative reports.

3. Such other matters that occurred during the quarter that in the judgment of the Civilian Oversight Commissioner should be included in the quarterly report.

(Ord. No. 71749, § 5, 12-5-2023.)

3.140.050 Budget, civilian oversight staff and investigators, office/meeting space.

A. The Department of Public Safety shall include the Division of Civilian Oversight as part of its annual budget requests. The Division of Civilian Oversight shall comply with the budget and other financial processes in the City's Charter.

B. The Division of Civilian Oversight shall be directed by the Civilian Oversight Commissioner and supported by the Civilian Oversight staff and Civilian Oversight investigators.

C. The Mayor and Director of Public Safety shall ensure that the Division of Civilian Oversight is provided adequate office and meeting space for its staff and all supplies, resources, and equipment reasonably necessary for the conduct of its business and performance of its duties, including the meetings and proceedings of the COB and DFOB. The Division of Civilian Oversight's office space shall be in a secure location.

(Ord. No. 71749, § 6, 12-5-2023.)

3.140.060 Public Integrity Unit.

A. Pursuant to the Circuit Attorney's authority under RSMo Ch. 56, and subject to enabling appropriations, and in accordance with an executed memorandum of understanding approved by the Director of Public Safety, the Circuit Attorney may, in his or her discretion and in accordance with the provisions of this chapter, establish a Public Integrity Unit for the purposes of investigating police and detention incidents and misconduct and prosecuting criminal conduct. The Circuit Attorney may also, in his or her discretion, provide the COB, DFOB and public with an annual report detailing the Public Integrity Unit's activities and findings as permitted by law.

B. The Director of Public Safety is authorized to enter into a memorandum of understanding with the Office of the Circuit Attorney setting forth the agreed upon rules and procedures governing simultaneous professional standards and public integrity inquiries and delineating the duties and authorities of the Public Integrity Unit, Division of Civilian Oversight, and Division of Police.

C. The matters that may be determined by such memorandum include but need not be limited to: Protocols governing control and supervision of the scene of a Police or Corrections incident, collection, and custody of evidence, and setting out the respective roles, responsibilities and authorities of police officers (i.e. securing the scene), civilian oversight investigators (i.e. observing and recording the scene), and public integrity investigators (i.e. evidence collection) at the scene of police or correctional incidents or misconduct.

1. Protocols governing witness and employee interviews, ensuring that Civilian Oversight and Public Integrity investigators receive access to witnesses and employees upon request, except that, where Civilian Oversight investigators request statements from law enforcement officers under administrative investigation or from law enforcement officers who reasonably believe that administrative questioning could lead to disciplinary action, demotion, dismissal, transfer, or placement on a status that could lead to economic loss, such statements shall be requested and obtained in accordance with and subject to state law then in effect. Protocols shall also be developed and enacted that protect criminal inquiries from contamination by ensuring that all information collected by the Division of Civilian Oversight is securely segregated and kept confidential from and not shared with criminal investigators so as to preserve the integrity of criminal investigations.

2. Protocols governing simultaneous investigations between the Public Integrity Unit, Division of Civilian Oversight, and Division of Police, including cases in which a police incident or detention incident also involves an alleged crime committed by a civilian. Such protocols shall be designed to permit all investigations to proceed unimpeded whenever possible.

3. Protocols governing the documentation of the Public Integrity Unit and professional standards inquiries. Such protocols shall be designed to ensure the development of a complete record, including but not limited to a detailed camera recording of the scene and incident report.

(Ord. No. 71749, § 7, 12-5-2023.)

3.140.070 Creation of COB; reconstitution of DFOB; oversight work plans for COB and DFOB; COB and DFOB scope of work.

A. *Reconstituted COB, and DFOB housed as part of Division of Civilian Oversight.* There is reestablished and reconstituted and appointed as part of the Division of Civilian Oversight two (2) independent citizen boards organized and authorized to provide Oversight and render advice, and policy recommendations concerning matters falling within the jurisdiction of the Division of Civilian Oversight as set forth in this chapter known as the Civilian Oversight Board (COB) and the Detention Facilities Oversight Board (DFOB).

B. *Development and execution of annual oversight work plans.* The COB and DFOB shall have the duty and broad authority and discretion to formulate, develop, and execute an annual oversight work plan, which shall be the written plan as the COB and DFOB may determine for programs, initiatives, projects, and routine and ongoing tasks in the forthcoming fiscal year setting forth each entity's purpose, priorities, goals, timelines and means of measuring progress in the fiscal year (or part thereof) ahead to promote constant improvement in operations and professionalism, respectively, of the Division of Police and Division of Corrections, which reports shall be prepared in consultation with the Civilian Oversight Commissioner and with the assistance of the Civilian Oversight staff and with their initial work plan of each published on the City website within one hundred eighty (180) days of their organization and thereafter not later than July 1 of each year on the City website.

C. *Access to information.* Except as prohibited by this chapter or by federal or state law, the COB, DFOB, the Commissioner, and the Civilian Oversight investigators shall have access to any and all information related to their mission, duties and official activities, and the Civilian Oversight Commissioner, with the full cooperation of the Commissioners of Police and Corrections, shall provide the COB, DFOB, the Commissioner, and the Civilian Oversight investigators reasonable access, or shall assist them in obtaining reasonable access, to information including but not limited to the following:

1. Records of all complaints, police incidents, police professional misconduct, detention incidents and corrections professional misconduct.

2. Data constituting or relating to complaints, incidents, patterns or practices of misconduct, and other matters including, but not limited to, Division of Police or Division of Corrections policy directives, and detention facility conditions, operations and maintenance.

3. The proceedings and status of professional standards inquires.

4. Interviews with complainants, witnesses, Division of Police and Division of Corrections employees, and detainees in relation to investigation activities, including but not limited to access to transcripts, Garrity statements and opportunity to observe interviews when practicable.

5. Documents including but not limited to, policy directives, contracts, budgets, MOUs and any other documents relating to subjects including but not limited to police or correctional policies, procedures and operations, detainees, facility operations and maintenance, and police or correctional employees.

6. Records of completed investigations, whether conducted by the Division of Civilian Oversight, Circuit Attorney's Office, or previously by the Force Investigative Unit or Division of Internal Affairs.

7. Access to the Regional Justice Information System files and data, including IAPro and any other data storage system containing personnel or investigative files, as permitted by state or federal law.

8. The DFOB, the Commissioner, and the Civilian Oversight investigators shall be provided access to City detention facilities at any time upon notice to the Corrections Commissioner and without conditions or requirements as to the timing or form of such notice. When requested access by the DFOB, the Commissioner or the Civilian Oversight investigators to the detention facility, the Corrections Commissioner, the Mayor and Director of Public Safety shall promptly act and make every effort to secure access for the Civilian Oversight investigators to detention facilities where detainees are housed for the City. City contracts for the housing of detainees at other detention facilities shall contain provisions to ensure the DFOB and investiga-

tors access to the facilities to inspect conditions of detention and to interview complainants and witnesses to the extent permitted by law. Where the present circumstances at a detention facility would temporarily preclude the DFOB, the Commissioner or the investigators access to the detention facility, or where the DFOB or investigators are denied or prohibited from accessing a detention facility where detainees are housed for the City, the Corrections Commissioner shall upon gaining knowledge of such circumstances or prohibitions send written notice thereof to the DFOB and Commissioner of Civilian Oversight with the reasons why the DFOB or investigators are temporarily precluded or prohibited from accessing the detention facility and when or if the DFOB or investigators may access the detention facility.

9. New DFOB members shall complete all new member orientation as defined in Section 3.140.130.E, prior to having access to detention facilities.

10. Access to examine physical evidence, in consultation with the Division of Civilian Oversight, Division of Police, Circuit Attorney's Office, or other relevant law enforcement entities.

D. *Subpoena power.* The COB and DFOB shall each have the power to administer oaths, to subpoena and require the attendance of witnesses located within the City including custodians of records for private and corporate entities conducting business within the city and the production by them of books, papers, videos, medical records, phone and internet records, bank records or other records pertinent to any matter of inquiry and to examine such witnesses under oath in relation to any matter properly within the scope of its mission and duties. The COB and DFOB shall each have original subpoena power to be exercised by members in attendance at a meeting properly noticed, with the Civilian Oversight Commissioner acting administratively on behalf of the board exercising its power, as required by Section 3.14.030.C, hereof.

E. *Information sharing with County offices.* The COB and DFOB, with the assistance of the City Counselor and the Civilian Oversight Commissioner shall be authorized to negotiate and agree to protocols and agreements regarding the gaining of access, production and examination of information relevant to their oversight authority that may be held by the Offices of the Circuit Attorney, Medical Examiner and/or Sheriff's Department.

F. *Work impeded.* In the event the COB or DFOB by majority vote believes they are not being provided adequate support or access to information and, thus, that their work is being impeded, they shall bring their complaints in writing directly to the Mayor of the City of St. Louis and the Chair of the Public Safety Committee of the Board of Aldermen.

G. *Annual oversight reports.* The COB and DFOB shall prepare an annual oversight report, which shall be a written report that describes the programs, initiatives, projects, and routine and ongoing tasks undertaken in the preceding fiscal year by the COB and DFOB, prepared and published with the assistance of Civilian Oversight staff not later than August 1 of each year on the City website, setting forth how the Board made continuous progress advancing its purpose, priorities, goals, timelines and means of measuring progress as had been set forth in their work plans for the fiscal year just completed. The COB or DFOB may supplement the annual oversight report by such periodic reports as it sees fit.

H. *Special counsel.* Internal or external special counsel is subject to the provisions of Section 3.140.030.E and 3.140.030.F.

I. *Service provider agreements.* All agreements for the provision of services at detention facilities, the transport of detainees, outside healthcare services or other outside care services for detainees, or for the housing of detainees at outside facilities shall contain a provision which requires the service provider to cooperate with DFOB investigations of complaints and incidents which have a direct relationship to the services provided including interviewing service providers' employees.

J. *Non-interference.* The DFOB and COB shall not interfere with any criminal investigation or civil litigation. Where the DFOB or COB is notified in writing by the City Counselor, Commissioner of Police, or Circuit Attorney that a DFOB or COB investigation or other activity may interfere with a criminal investigation or civil litigation involving the City, the COB or DFOB shall avoid such interference by and including up to staying the potentially interfering activity until such time as it will not interfere with the investigations of authorities or courts with jurisdiction over the matter. As to civil litigation matters, not later than one hundred eighty (180) days following such notice from the City Counselor, the City Counselor shall provide the DFOB a written update of the status of the request that potentially investigative activities continue to be

stayed and the reasons supporting the continued stay. Provisions of Section 3.140.030.B.a shall be applicable.

K. *Confidentiality.* The DFOB and COB shall, when required by federal or Missouri state statute, City ordinance, or the City's written policies and practices, maintain the confidentiality of any file, record, or data received pursuant to or in the course of official DFOB or COB activates and shall be bound by rules of confidentiality specifically including those regarding City personnel and employee discipline. In addition to any penalties provided by law it shall be a violation of this chapter for DFOB or COB, or anyone assigned to or employed by the DFOB or COB as provided in this chapter, to disclose confidential information to anyone other than staff and individuals assigned to the DFOB or COB as provided in this chapter, the City Counselor's office, the Director of Public Safety, or authorized Division of Civilian Oversight employees. Any person who is found to have engaged in or facilitated the disclosure of confidential information in violation of this provision shall immediately be disqualified from serving as a member of the DFOB or COB or to continue their employment by the City. If the DFOB or COB have any questions pertaining to the Sunshine Law or confidentiality, they shall contact the City Counselor or the City Counselor's designee and must follow the legal counsel provided by the City Counselor. If there is any question concerning the confidential nature of a document or information, such question must be resolved in favor of the document or information being confidential until a legal opinion from the City Counselor is rendered.

1. New members and existing members of the DFOB and COB shall not view or receive confidential information pertaining to work of the board until all confidentiality and non-disclosure forms are signed.
(Ord. No. 71749, § 8, 12-5-2023.)

3.140.080 Members, qualifications and diversity of COB.

A. *Members.* The COB shall consist of nine (9) members of the public nominated by the Mayor of the City of St. Louis and confirmed by the Board of Aldermen. To the extent practicable, appointments shall be broadly representative of the City's diversity and shall include members with knowledge and/or experience in the fields of human resources practices, management, policy development, auditing, law, investigations, law enforcement, youth representation, civil rights and civil liberties, public health, medicine and healthcare, social work as well as representation from communities experiencing the most frequent contact with the Division of Police and the Division of Corrections. Background checks shall be required for all members. Members shall be issued identification cards, but shall not be issued and shall not display, wear, or carry badges that so resemble a peace officer's badge that an ordinary reasonable person would believe that members have the authority of a peace officer. In addition to any other requirements or qualifications hereunder, at least one (1) member of the COB and the DFOB shall be at the time of their appointment between the ages of eighteen (18) and twenty-four (24) years old.

B. *COB Districts.* There shall be at least one (1) and not more than two (2) COB members who reside in each of the seven (7) Civilian Oversight Board Districts ("COB Districts"). Each COB District shall consist of two (2) Aldermanic wards, as defined pursuant to Ordinance 71443, as follows:

District One: Wards 1 and 2

District Two: Wards 4 and 5

District Three: Wards 3 and 6

District Four: Wards 7 and 8

District Five: Wards 9 and 10

District Six: Wards 11 and 14

District Seven: Wards 12 and 13

a. *Qualifications.* To qualify for nomination, confirmation, and continued service on the COB, an individual must satisfy all following qualifications:

1. The individual must be a resident of the City of St. Louis.

2. The individual must have reached the age of eighteen (18) by the date that they will take office as a member of the COB.

3. The individual must not hold or be a candidate for any public office.

4. The individual must not be an employee of the City of St. Louis or of the State of Missouri.

5. The individual may not have an immediate family member who is currently employed by the Division of Police.

6. The individual may not be a current sworn police officer or corrections officer or a representative or employee of an employee association representing sworn police officers.

7. Only residents who are and can be fair and impartial should be nominated or appointed. Members

shall always judge cases on an individual basis, not categorically favor a complainant or accused, and shall act and make decisions based only upon the facts and the evidence before them.
(Ord. No. 71749, § 9, 12-5-2023.)

3.140.090 Appointment, term of office, removal, vacancy, no compensation.

A. *Appointment process.* COB members shall be confirmed as follows:

1. *Recommendation.* Within thirty (30) days of the effective date of this chapter and within fifteen (15) days of any vacancy on the COB, the Office of the Mayor shall post an application form online and within forty-five (45) days after such posting the Clerk of the Board of Aldermen shall deliver to the Office of the Mayor the names of any qualified individuals recommended by Aldermen for such positions.

2. *Nomination.* Within thirty (30) days of receipt of applications and recommended names, the Mayor shall deliver to the Board of Aldermen nominations for vacant COB positions. The Mayor may nominate any qualified person to serve as a COB member however, before nominating a COB member, the Mayor shall consider for nomination any individual recommended by the Aldermen.

3. *Confirmation.* Within ninety (90) days of the Mayor's nomination, the Public Safety Committee of the Board of Aldermen shall hold public hearings with public testimony concerning the nominees and the full Board of Aldermen shall vote on whether to confirm the nominees. If a majority of the members of the Board of Aldermen vote to confirm a nominee, the nominee shall be appointed as a COB member. In the event an individual is not confirmed by a majority of the Board of Aldermen, the Mayor shall deliver to the Board of Aldermen a new nominee for the COB within thirty (30) days of the Board of Aldermen voting not to confirm the prior nominee.

4. If there is a vacancy on either the COB or DFOB for more than a year, the Director of Public Safety, the President of the Board of Aldermen, and the Chair of the Public Safety Committee, shall each identify a candidate, none of whom may have been previously nominated to and rejected by the Board of Aldermen, and one of these shall be appointed by the Mayor as a COB member.

B. *Term of office.*

1. Except as provided in this Section for initial members all COB members shall be appointed for three-year terms. No member shall serve on the COB for more than two (2) consecutive three-year terms provided, however; an initial member appointed for a term of less than three (3) years and members appointed to finish the unexpired term of a member shall be eligible to serve two (2) consecutive, full three-year terms. Notwithstanding anything to the contrary stated herein, members currently serving the Citizens Oversight Board ("COB") established under Ordinance Numbers 69984 or 71556 at the time of this chapter's enactment shall for the time remaining on their COB terms be deemed initial members of the COB hereunder.

2. The initial members of the COB shall have staggered terms as follows: For the COB, selected by random drawing, four (4) members shall serve three-year terms and three (3) members shall be appointed serve two-year terms.

C. *Member removals.* Upon good cause the COB may vote to request the Board of Aldermen to act to remove a member. Within five (5) days following the vote the Civilian Oversight Commissioner shall send the request in writing to the Board of Aldermen and shall send a copy of the request to the Mayor and Chairperson of the Public Safety Committee. Within sixty (60) days following their receipt of the request the Board of Alderman shall vote whether to approve the request with a majority of the members of the Board of Aldermen voting in favor of the request needed for approval. If the Board of Aldermen does not act within this sixty-day time period, the request shall be deemed denied. Following receipt of the request from the Civilian Oversight Commissioner and before an aldermanic vote is taken, the right to vote on Board matters shall be suspended.

D. *Vacancies.* Vacancies on the COB occasioned by resignation, expiration of term, loss of qualifications, or otherwise, shall be reported in writing to the Mayor and the Board of Aldermen by the Civilian Oversight Commissioner. The vacancy shall be filled as set forth in the appointment process section of this chapter. Appointments to fill vacancies shall be for the unexpired portion of a term.

E. *Compensation.* As required by RSMo 590.653, board members shall serve without compensation.
(Ord. No. 71749, § 10, 12-5-2023.)

3.140.100 Proceedings and officers for the COB.

A. *Rules.* At its initial meeting the COB shall adopt rules to govern their proceedings, and may thereafter amend, revise, or otherwise modify their rules, as deemed appropriate. The COB shall, with the advice of the City Counselor, prepare and adopt necessary rules, policies and procedures for the conduct of their business and shall conduct themselves in accordance therewith. Deliberations about the creation of such rules, policies and procedures shall be considered open meetings in accord with the Missouri Sunshine Law. Copies of said rules shall be available to the public on the city's website and included in the COB's annual report.

B. *Meetings.* The COB shall meet as they deem necessary, but in no event shall they meet less than six (6) times per year with at least one (1) meeting held in each quarter. The COB may vote to close a meeting as may be permitted by law, including RSMo 610.021 of Missouri's Sunshine law provided, however; where the matters taken up by the COB concern the disciplining of an identified or identifiable Division of Police or Division of Corrections employee, personally identifiable healthcare records, a juvenile detainee, or where an individual detainee is personally identified or identifiable the COB shall, as may be permitted by law, close the meeting or the portion of the meeting that the matter is before it. The COB shall comply with the requirements for closed meetings in RSMo 610.021 of Missouri's Sunshine law. The COB shall allow adequate time for public comment at each meeting.

C. *Officers.* The COB shall elect a chairperson, vice chairperson, and secretary at their initial meetings and annually thereafter except when otherwise required. COB officers shall serve one-year terms and shall not serve for more than two (2) consecutive one-year terms but may be reelected to a position after a break in service of not less than twelve (12) months, provided, however; officers elected to fill a vacancy for the remainder of an unexpired term shall be allowed complete two (2) consecutive one-year terms.

D. *COB records and record maintenance.* The COB shall maintain and retain records of its proceedings, inquiries, reports, and other materials that constitute records under the Missouri Sunshine Law. The COB Commissioner, or his or her designee, is designated as the COB custodian of records for purposes of Missouri's Sunshine law.

E. *Orientation.* The COB, in cooperation with the Civilian Oversight Commissioner and Civilian Oversight staff, shall develop and participate in an orientation program for COB members and incoming members of the Civilian Oversight staff, which shall cover relevant operations of the Division of Police. The program shall also cover COB member responsibilities with respect to confidentiality, Missouri's Sunshine Law, citizens', detainees', and City employees' rights under the Constitution and state and federal laws, and state and federal laws governing police and detention facility operations, conditions and treatment of detainees, procedural justice, conflict resolution, national standards of constitutional policing, best practices for conducting investigations, and labor rights and laws, and history of the relationships between people of color and the economically poor and the police and correctional officers.

F. *Conflict of interest.* No member of the COB shall participate in any matter in which they or any member of their family is a party or a witness or has a financial or professional interest or that otherwise presents a conflict of interest, real or perceived, of such magnitude that it calls into question the impartiality of the proceedings. A conflict of interest may be raised by any member of the COB and any question concerning whether a conflict disqualifies a member from participating in a particular matter shall be resolved conclusively by the City Counselor, in writing, but with no right of appeal.

G. *Special counsel.* Internal or external special counsel is subject to the provisions of Section 3.140.030.E and Section 3.140.030.F.

(Ord. No. 71749, § 11, 12-5-2023.)

3.140.110 DFOB reconstituted.

DFOB reestablished. A Detention Facility Oversight Board is hereby reestablished, reconstituted and organized as an independent citizen advisory board that reflects the City's diverse communities and authorized to review complaints and initiate professional standards inquiries as provided herein and to the extent permitted by federal and Missouri state statutes and regulations, and the City's Civil Service Rules and Regulations, and subject to the confidentiality and non-interference provisions of this chapter, and to make findings and recommendations based thereon, including recommendations for disciplinary action. Notwithstanding anything to the contrary stated herein, members currently serving the Detention Facility Oversight Board ("DFOB") established under Ordinance Num-

ber 71430 at the time of this chapter's enactment shall for the time remaining on their DFOB terms be deemed initial members of the DFOB hereunder.

A. *DFOB membership.* The DFOB shall be comprised of nine (9) members who shall be nominated by the Mayor or Chairperson of the Public Safety Committee as provided in this chapter and appointed to the DFOB by a vote of the Board of Aldermen. Only individuals who can be fair, objective and act without bias or favor for complainants, detainees and employees should be nominated for appointment to the DFOB.

B. *Nominating authorities.* Six (6) of the members of the DFOB shall be nominated for appointment by the Mayor and three (3) members shall be nominated for appointment by the Chairperson of the Public Safety Committee.

C. *Member qualifications.* To be eligible to serve as a member of the DFOB individuals must possess the following qualifications and meet following requirements at the time of their nomination, and at all times during their service on the DFOB:

(1) Must reside of the City of St. Louis.

(2) Must be at least eighteen (18) years of age as of the date of their nomination for appointment to the DFOB.

(3) Must not hold or be a candidate for any elected public office.

(4) Must not be an employee of the City of St. Louis or of the State of Missouri.

(5) Must not have an immediate family member who is currently employed by the City of St. Louis Division of Police or the Division of Corrections.

(6) Must not have been incarcerated in a state or federal correctional institution or penitentiary, or in a county or municipal detention facility following a criminal conviction in the two (2) years immediately prior to their nomination to the DFOB or serving on parole or probation for a criminal conviction at the time of their nomination or at any time during their service on the DFOB.

(7) Must not be employed or have a member of their immediate family who is employed by any local, state or federal law enforcement or corrections agency or by any entity conducting business in the corrections field or providing services to detention facilities. However, advocacy work or advocacy services for a nonprofit within the corrections field shall be permitted.

(8) Must have demonstrable experience, knowledge, or expertise in one (1) of more of the following fields: corrections, law enforcement, financial management, law, medicine, public health, mental or behavioral health, social work, civil liberties advocacy, education, or other field equally relevant to the DFOB's purpose and duties.

D. *Attorney member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall be a retired or no longer practicing attorney who formerly practiced criminal law in the state of Missouri, or a judge who has retired from a Missouri state or municipal court, or federal court.

E. *Corrections member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall have experience in the management, operations, or oversight of detention facilities, or possess particular knowledge or expertise in the field of corrections or criminal justice, provided, however; experience or particular knowledge or expertise in law enforcement shall not constitute corrections experience.

F. *Law enforcement member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall have professional experience in the field of law enforcement or possess knowledge or expertise in the field of law enforcement provided, however; military experience including military police experience, or particular knowledge or expertise in military law enforcement shall not constitute law enforcement experience.

G. *Previously incarcerated member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall have served a period of incarceration in a state or federal correctional institution or penitentiary, or in a county or municipal detention facility following a criminal conviction provided, however; such member shall not have been incarcerated in a state or federal correctional institution or penitentiary, or in a county or municipal detention facility following a criminal conviction in the two (2) years immediately prior to being nominated for appointment to the DFOB and shall not be serving on parole or probation at the time of their nomination or at any time during their service on the DFOB.

H. *Medical professional member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall be a physician, physician's assistant, licensed practical nurse, registered nurse, or equally qualified medical professional licensed to practice in the

State of Missouri, and preferably with experience working as a health care professional in a detention or corrections facility or similar institutional setting.

I. *Civil liberties advocate member.* At least one (1) member of the DFOB, who shall be nominated by the Mayor, shall be an employee or representative of a recognized civil liberties advocacy organization with a focus or significant experience in advocating for inmates' Constitutional and human rights.

J. *Age eighteen (18) to twenty-four (24) member.* At least one (1) member of the DFOB shall be between the ages of eighteen (18) and twenty-four (24) years of age at the time of their nomination.
(Ord. No. 71749, § 12, 12-5-2023.)

3.140.120 Member nominations, appointments, terms, vacancies and removals.

A. *Member nominations.* Upon the occurrence of a vacancy on the DFOB the Commissioner shall promptly send written notice of the vacancy to the Clerk of the Board of Aldermen, the Chairperson of the Public Safety Committee and the Mayor. Not less than thirty (30) days following the date of their receipt of the notice of a vacancy the Mayor or the Chairperson of the Public Safety Committee (as the case may be) shall submit the name of their nominee in writing to the to the Clerk of the Board of Aldermen, the Chairperson of the Public Safety Committee or Mayor. The Clerk shall promptly notify the members of the Board of Aldermen of any vacancy and the members shall have thirty (30) days following the date of the Clerk's receipt of the notice to recommend qualified persons for appointment to the DFOB to the Chairperson of the Public Safety Committee or the Mayor. Board of Aldermen members' recommendations must be submitted in writing. The Chairperson of the Public Safety Committee and Mayor may nominate any qualified person to serve on the DFOB provided, however, the Mayor and Chairperson of the Public Safety Committee shall consider those individuals recommended by the members of the Board of Aldermen.

B. *Member appointments.* Within ninety (90) days of the Clerk's receipt of the Mayor's or Chairperson of the Board of Aldermen Public Safety Committee's nominees to serve on the DFOB, the Public Safety Committee shall hold a public hearing and take public testimony regarding the nomination, and within one hundred eighty (180) days following the Public Safety Committee meeting the Board of Aldermen shall vote on whether to confirm the nominees. If the Board of Aldermen votes to confirm the nominee, the nominee shall be appointed to the DFOB. In the event an individual is not confirmed by the Board of Aldermen, within thirty (30) days of the Board of Aldermen's vote not to confirm the nominee, the Mayor or Chairperson of the Public Safety Committee (as the case may be) shall submit in writing to Clerk of the Board of Aldermen, the Chairperson of the Public Safety Committee or Mayor the name a new nominee.

C. *Term.* Except as provided in this Section for the initial members of the DFOB, all DFOB members shall be appointed for three-year terms. No member shall serve on the DFOB for more than two (2) consecutive three-year terms provided, however; an initial member appointed for a term of less than three (3) years and members appointed to finish the unexpired term of another member shall be eligible to serve two (2) consecutive, full three-year terms.

D. *Initial members' terms.* The initial members of the DFOB shall have staggered terms as follows: At the initial meeting of the DFOB each of the initial members' terms shall be determined by random drawing. Three (3) of the initial members shall serve three-year terms, three (3) shall serve two-year terms, and three (3) shall serve one-year terms. The reconstitution of the DFOB as established herein does not invalidate the initial members of the DFOB.

E. *Removal.* In the event that a member no longer meets the qualifications of Section 3.140.110, has not completed the training required under Section 3.140.130, or a member has a conflict of interest as provided under Section 3.140.100, the Civilian Oversight Commissioner shall, within thirty (30) days, send a request to the Public Safety Committee of the Board of Aldermen to act to remove the member, and send a copy of the request to the Mayor, or the Public Safety Committee of the Board of Aldermen may initiate the process to remove the member. Within thirty (30) days, if in session, and sixty (60) days if not in session, following their receipt of the request or initiation of removal proceedings, the Public Safety Committee of the Board of Alderman shall vote whether to approve the request with a majority of the members of the Public Safety Committee of the Board of Aldermen voting in favor of the request needed for approval. If the Public Safety Committee of the Board of Aldermen does not act within the specified time period, any such request shall be deemed denied. Following receipt of the request

from the Civilian Oversight Commissioner and before an aldermanic vote is taken, the right to vote on Board matters shall be suspended.

F. *Vacancies.* Vacancies on the DFOB occasioned by a member's resignation, removal, expiration of their term, disqualification, or death or inability to serve shall be reported in writing by the Civilian Oversight staff to the Mayor, the Clerk of the Board of Aldermen, and the Chairperson of the Board of Aldermen Public Safety Committee. Any vacancies shall be filled as provided in this chapter.

G. Appointments to fill vacancies not occasioned by the expiration of a member's term shall be for the unexpired portion of the vacating member's term.
(Ord. No. 71749, § 13, 12-5-2023.)

3.140.130 DFOB proceedings, officers and member orientation.

A. *Rules.* At their initial meeting the DFOB shall adopt rules to govern their proceedings, and may thereafter amend, revise or otherwise modify their rules. The DFOB shall, with the advice of the City Counselor, prepare and adopt necessary rules, policies and procedures for the conduct of their business and shall conduct themselves in accordance therewith. Copies of said rules shall be available to the public and included in the DFOB's annual report.

B. *Meetings.* The DFOB shall meet as they deem necessary, but in no event shall the DFOB meet less than six (6) times per year with at least one (1) meeting held during each fiscal quarter. The DFOB may vote to close a meeting as may be permitted by law, including RSMo 610.021 of Missouri's Sunshine law provided, however; where the matters taken up by the DFOB concern the disciplining of an identified or potentially identifiable Division employee, personally identifiable healthcare records, a juvenile detainee, or where an individual detainee is personally identified or potentially identifiable the DFOB shall, as may be permitted by law, close the meeting or the portion of the meeting. The DFOB shall comply with the requirements for closed meetings in RSMo 610.021 of Missouri's Sunshine law.

C. *Officers.* The DFOB shall elect a chairperson, vice chairperson, and secretary at their initial meeting and annually thereafter except when otherwise required. DFOB officers shall serve one-year terms and shall not serve for more than two (2) consecutive one-year terms in the same position but may be reelected to the position after a break in service of not less than twelve (12) months, provided, however; officers elected to fill a vacancy for the remainder of an officer's unexpired term shall be allowed complete two (2) consecutive one-year terms.

D. *Records.* The DFOB shall maintain records of its proceedings, inquiries, reports and other materials that constitute records under the Missouri Sunshine Law. The Commissioner shall be the DFOB's custodian of records for purposes of Missouri's Sunshine law.

E. *Member orientation.*

(1) Member orientation shall consist of nine (9) trainings to be completed by every member within four (4) months of their appointment date. The administration of these trainings shall begin no later than a members' tenth day after appointment and be publicly available online. If the orientation trainings are not completed within a four (4) month time period at the fault of the member, the member shall become a non-voting member until the required trainings are completed.

(2) Member orientation shall include the following topics and shall be completed within a maximum duration of twenty-five (25) hours, covering the following topics: State and federal laws governing detention facilities operations, conditions and treatment of detainees and detainee rights under State and federal laws (part I and II - total of sixteen (16) hours complete); procedural justice; Mo. Sunshine Law; confidentiality/ City employees' rights under State and federal laws and civil service rules and regulations; conflict resolution; best practices for conducting investigations; history of relationships between people of color, police, and correction officers.

(3) Following the reconstitution of the DFOB as defined herein, any new member orientation that existing members have completed prior to the effective date of this chapter shall be deemed applicable to the training requirements outlined in Subsection E.

(4) Member orientation shall not apply to members who are reappointed.

(5) Board members shall immediately be eligible to exercise their duties once this new member orientation is completed.

F. *Ongoing training.*

(1) Ongoing training will be offered if recommended by DFOB members or the Commissioner to address specific knowledge needs.

(2) Provisions within this section shall not prevent the fulfillment of duties of DFOB members.
(Ord. No. 71749, § 14, 12-5-2023.)

3.140.140 Additional scope of the DFOB.

A. *Interview access.* A DFOB member, but must be accompanied by an Civilian Oversight investigator, is authorized to be present at interviews of complainants and witnesses, including detainees and employees, that are part of a professional standards inquiry provided, however the DFOB members present at the interview may not ask questions but may recommend questions to Civilian Oversight investigator before an interview or during a break in an interview.
(Ord. No. 71749, § 15, 12-5-2023.)

Chapter 3.142

DISCLOSURE OF POTENTIAL CONFLICTS OF INTEREST AND SUBSTANTIAL INTERESTS

Sections:

3.142.010 Declaration of policy.
3.142.020 Conflicts of interest.
3.142.030 Disclosure reports.
3.142.040 Filing of reports.

3.142.010 Declaration of policy.

The proper operation of municipal government requires that public officials and employees be independent, impartial and responsible to the people; that government decisions and policy be made in the proper channels of the governmental structure; that public office not be used for personal gain; and that the public have confidence in the integrity of its government. In recognition of these goals, there is hereby established a procedure for disclosure by certain officials and employees of private financial or other interests in matters affecting the City. (Ord. No. 70622, § 1, 10-18-2017.)

3.142.020 Conflicts of interest.

A. All elected and appointed officials as well as employees of a political subdivision must comply with RSMo 105.454 on conflicts of interest as well as any other state law governing official conduct.

B. Any member of the Board of Aldermen who has a "substantial or private interest" in any measure, bill, order or ordinance proposed or pending before such governing body must disclose that interest to the Clerk of the Board and such disclosure shall be recorded in the Journal of the Board of Aldermen. Substantial or private interest is defined as ownership by the individual, his spouse, or his dependent children, whether singularly or collectively, directly or indirectly of: (1) 10% or more of any business entity; or (2) an interest having a value of $10,000.00 or more; or (3) the receipt of a salary, gratuity, or other compensation or remuneration of $5,000.00 or more, per year from any individual, partnership, organization, or association within any calendar year. (Ord. No. 70622, § 2, 10-18-2017.)

3.142.030 Disclosure reports.

Each elected official, candidate for elective office, the Mayor, the Supply Commissioner, and the City Counselor shall disclose the following information by May 1 if any such transactions were engaged in during the previous calendar year:

A. For such person, and all persons within the first degree of consanguinity or affinity of such person, the date and the identities of the parties to each transaction with a total value in excess of five hundred dollars, if any, that such person had with the political subdivision, other than compensation received as an employee or payment of any tax, fee or penalty due to the political subdivision, and other than transfers for no consideration to the political subdivision.

B. The date and the identities of the parties to each transaction known to the person with a total value in excess of five hundred dollars, if any, that any business entity in which such person had a substantial interest, had with the political subdivision, other than payment of any tax, fee or penalty due to the political subdivision or transactions involving payment for providing utility service to the political subdivision, and other than transfers for no consideration to the political subdivision.

C. The Mayor and the Supply Commissioner also shall disclose by May 1, or the appropriate deadline as referenced in RSMo 105.487, the following information for the previous calendar year:

1. The name and address of each of the employers of such person from whom income of one thousand dollars or more was received during the year covered by the statement;

2. The name and address of each sole proprietorship that he owned; the name, address and the general nature of the business conducted of each general partnership and joint venture in which he was a partner or participant; the name and address of each partner or

co-participant for each partnership or joint venture unless such names and addresses are filed by the partnership or joint venture with the secretary of state; the name, address and general nature of the business conducted of any closely held corporation or limited partnership in which the person owned ten percent or more of any class of the outstanding stock or limited partnership units; and the name of any publicly traded corporation or limited partnership that is listed on a regulated stock exchange or automated quotation system in which the person owned two percent or more of any class of outstanding stock, limited partnership units or other equity interests;

3. The name and address of each corporation for which such person served in the capacity of a director, officer or receiver. (Ord. No. 70622, § 3, 10-18-2017.)

3.142.040 Filing of reports.

a. The financial interest statements shall be filed at the following times, but no person is required to file more than one financial interest statement in any calendar year;

1. Every person required to file a financial interest statement shall file the statement annually not later than May 1 and the statement shall cover the calendar year ending the immediately preceding December 31; provided that any such person may supplement their financial interest statement to report additional interests acquired after December 31, of the covered year until the date of filing of the financial interest statement.

2. Each person appointed to office shall file the statement within thirty days of such appointment or employment covering the calendar year ending the previous December 31;

b. Financial disclosure reports giving the financial information required in Section 3 shall be filed with the Clerk of the Board of Aldermen and with the Missouri Ethics Commission. The reports shall be available for public inspection and copying during normal business hours. (Ord. No. 70622, § 4, 10-18-2017.)

Chapter 3.145

COMMUNITY MEDIATION

Sections:

3.145.010 The Office of Community Mediation.
3.145.020 The Director of Community Mediation.
3.145.030 Volunteer community mediators.
3.145.040 Community mediation services.
3.145.050 Requests for mediation services.
3.145.060 Fees for mediation services.
3.145.070 Annual report.
3.145.080 Source of funding.

3.145.010 The Office of Community Mediation.

There shall be established an Office of Community Mediation which office shall be organized under and its management and administration supervised by the City Counselor's Office. The City Counselor's Office shall have no authority with respect to determinations to accept or reject requests for mediation by the Office of Community Mediation, the rules to be employed for mediation or the conduct thereof. (Ord. No. 70681, § 1, 12-12-2017.)

3.145.020 The Director of Community Mediation.

A Director shall be appointed to manage and oversee the operation of the Office of Community Mediation and the conduct of its business. The Director of the Office of Community Mediation shall establish a protocol for delivering voluntary mediation services, which is consistent with nationally recognized standards for community mediation services including measures to ensure the confidentiality of mediations, and the Director shall monitor the outcomes and lasting results of mediations. The Director shall communicate to the employees and citizens of the City of St. Louis the availability of the voluntary mediation services as a confidential, conflict resolution option and alternative to litigation. (Ord. No. 70681, § 2, 12-12-2017.)

3.145.030 Volunteer community mediators.

The Director shall engage competent, professionally trained volunteers from the community to provide mediation services, and to this end the Director shall establish a professional training program or otherwise ensure that volunteer community mediators receive professional training that is consistent with nationally recognized standards for community mediation. Volunteer community mediators shall serve without compensation. (Ord. No. 70681, § 3, 12-12-2017.)

3.145.040 Community mediation services.

The Office of Community Mediation shall provide mediation services for the resolutions of disputes between the following individuals and entities:

A. Citizens of the City of St. Louis.

B. Municipal Offices and Divisions.

C. Police Division of the Department of Public Safety.

D. Fire Division of the Department of Public Safety.

E. All employees of the City of St. Louis.

F. Businesses located within the City of St. Louis.

G. Community and not-for profit organizations located within the City of St. Louis. (Ord. No. 70681, § 4, 12-12-2017.)

3.145.050 Requests for mediation services.

A. In consultation with the City Counselors Office, the Office of Community Mediation shall develop and establish a process for receiving and reviewing requests for mediation services between individuals, between businesses, and between individuals and businesses. In consultation with the City Counselors Office, the Office of Community Mediation shall develop and establish similar protocols specifically regarding requests for mediation services in which the Police Division of the Department of Public Safety or other City of St. Louis offices or divisions would be a participant, and such protocols shall be limited to the processes for requesting and initiating mediations and shall in no way concern or impact the rules of mediations or their conduct.

B. The Office of Community Mediation shall review all requests for mediation and within thirty-days of its receipt of such request it shall make a determination as to whether mediation is or is not appropriate in a given circumstance and within ten days thereafter notify the requesting parties in writing of such determination and the reasons therefor. (Ord. No. 70681, § 5, 12-12-2017.)

3.145.060 Fees for mediation services.

The Director of the Office of Community Mediation shall establish a schedule of fees for mediation services, which shall be based upon individual participants' ability to pay; provided, however, no participant shall be charged a fee that is not the same as all other participants to the mediation. The Director of the Office of Community Mediation or his or her designees shall determine what, if any fee shall be charged for mediation in a particular case. The Office of Community Mediation shall promptly notify participants of mediations what if any fees will be charged prior to scheduling a mediation. (Ord. No. 70681, § 6, 12-12-2017.)

3.145.070 Annual report.

Each year, on or before April 10, the Director shall provide the Board of Alderman a written report detailing the types and number of mediations conducted, the number of participants served, the number of voluntary, trained mediators providing mediation services under the program, the outcomes and lasting results of mediations, costs and fees charged for mediations. (Ord. No. 70681, § 7, 12-12-2017.)

3.145.080 Source of funding.

Funding for the establishment and ongoing operation of the Office of Community Mediations, which shall include, without limitation, compensation for the Director of the Office of Community Mediations and Secretary, shall come from the general operating budget commencing in the 2018-2019 Fiscal Year and annually thereafter. (Ord. No. 70681, § 8, 12-12-2017.)

Chapter 3.150

PROCESS AND DATABASE FOR REGISTERED NEIGHBORHOOD ORGANIZATIONS

Editor's Note:

Prior to inclusion of Ord. No. 72030 as a new Ch. 150, Ord. No. 71749, § 1, adopted December 5, 2023, amended the Code by repealing former Ch. 3.150, §§ 3.150.010—3.150.100. Former Ch. 3.150 pertained to the Detention Facility Oversight Board, and derived from Ord. No. 71430, adopted December 20, 2021.

Sections:

3.150.010	**Definitions.**
3.150.020	**Registration database and registration.**
3.150.030	**Eligibility to register.**
3.150.040	**Report.**

3.150.010 Definitions.

A. "City" means the City of St. Louis, Missouri.

B. "City agency" means the offices, boards, agencies, departments, and similar governmental and quasi-governmental bodies of the City.

C. "Neighborhood organization" means a resident-led, nonpartisan, civic group formed for the purpose of collectively addressing common issues and interests.

D. "Neighborhood Stabilization Division" means the Neighborhood Stabilization Division of the Department of Public Safety.

E. "Registration database" means a publicly accessible database that includes, at a minimum, the following information for each registered neighborhood organization: (i) name of the neighborhood organization, (ii) the neighborhood organization's meeting schedule (dates, times, locations), (iii) the geographic boundaries of the neighborhood organization, and (iv) contact information for at least one designated neighborhood organization representative.

F. "Registered neighborhood organization" means a neighborhood organization who meets the eligibility criteria specified in Section 3.150.030 and whose registration application has been approved by the Neighborhood Stabilization Division through the process specified in Section 3.150.020.
(Ord. No. 72030, § 1, 7-11-2025)

3.150.020 Registration database and registration.

A. The Neighborhood Stabilization Division shall create, or cause to be created, a registration database and shall implement, or cause to be implemented, all other provisions of this chapter.

B. The Neighborhood Stabilization Division shall produce and maintain, or cause to be produced and maintained, a publicly accessible registration application that solicits information from a neighborhood organization applicant reasonably necessary for (i) determining whether the applicant meets the eligibility criteria specified in Section 3.150.030 and (ii) inclusion in the registration database. A link to the registration application shall be posted, at a minimum, on the Neighborhood Stabilization Division website, and print copies of the registration application shall be available at a publicly accessible location designated by the Neighborhood Stabilization Division.

C. The Neighborhood Stabilization Division shall accept registration applications on a rolling basis and shall approve or deny an application within ninety (90) days of submission.

D. Within thirty (30) days of the approval of an application, the registered neighborhood organization shall be added to the registration database.

E. A registered neighborhood organization's registration status automatically expires each year on November 1 unless it is renewed. Notwithstanding the immediately preceding sentence, a neighborhood organization whose registration application is approved between August 1 and October 31 of any given year is deemed to have a registration that does not expire until November 1 of the following year.

F. The Neighborhood Stabilization Division shall produce and maintain, or cause to be produced and maintained, a publicly accessible registration renewal application that solicits updated information from a registered neighborhood organization reasonably necessary to (i) determine whether the registered neighborhood organization continues to meet the eligibility criteria specified in Section 3.150.030 and (ii) update the registered neighborhood organization's information in the registration database. The Neighborhood Stabilization Division shall send a renewal application to each registered neighborhood organization using the contact information in the registration database on or before August 1 of each year and shall approve or deny such renewal applications on or before October 31 of each year.

G. No fee shall be charged in connection with any application, registration, or renewal process.

H. If the geographic boundaries of a neighborhood organization applicant overlap with those of an existing registered neighborhood organization, the Neighborhood Stabilization Division shall require the applicant to acknowledge the presence of the existing registered neighborhood organization as part of the initial application and any subsequent renewal applications.

I. Any registered neighborhood organization whose registration has expired for any reason (including denial of a renewal application) shall be removed from the registration database. A neighborhood organization that has been removed from the registration database for any reason may be added again if it completes a registration application and its application is approved.
(Ord. No. 72030, § 2, 7-11-2025)

3.150.030 Eligibility to register.

A neighborhood organization is eligible to register if it satisfies the following minimum criteria:

A. Residents from within its geographic boundaries represent the majority of its membership;

B. It has geographic boundaries, and those boundaries include not more than five (5) City neighborhoods, in accordance with the Citywide neighborhood

map maintained by the Planning and Urban Design Agency, as it may be amended or superseded (Exhibit A, located at the end of this chapter);

C. It is governed by a written governance document or documents, such as bylaws, a constitution, or some similar document, which is publicly available and that includes (i) an elected leadership structure, with defined terms of service for elected positions, and an election process through which such leaders are elected by residents within its geographic boundaries; and (ii) membership description and criteria;

D. It has a means of regular communication with residents within its geographic boundaries using at least two (2) methods of communication, such as in-person meetings, virtual meetings, email, phone, text, social media, website, or physical signs; and

E. It has regular meetings open to residents within its geographic boundaries for which advance notice is provided, and such meetings occur at least four (4) times per year.

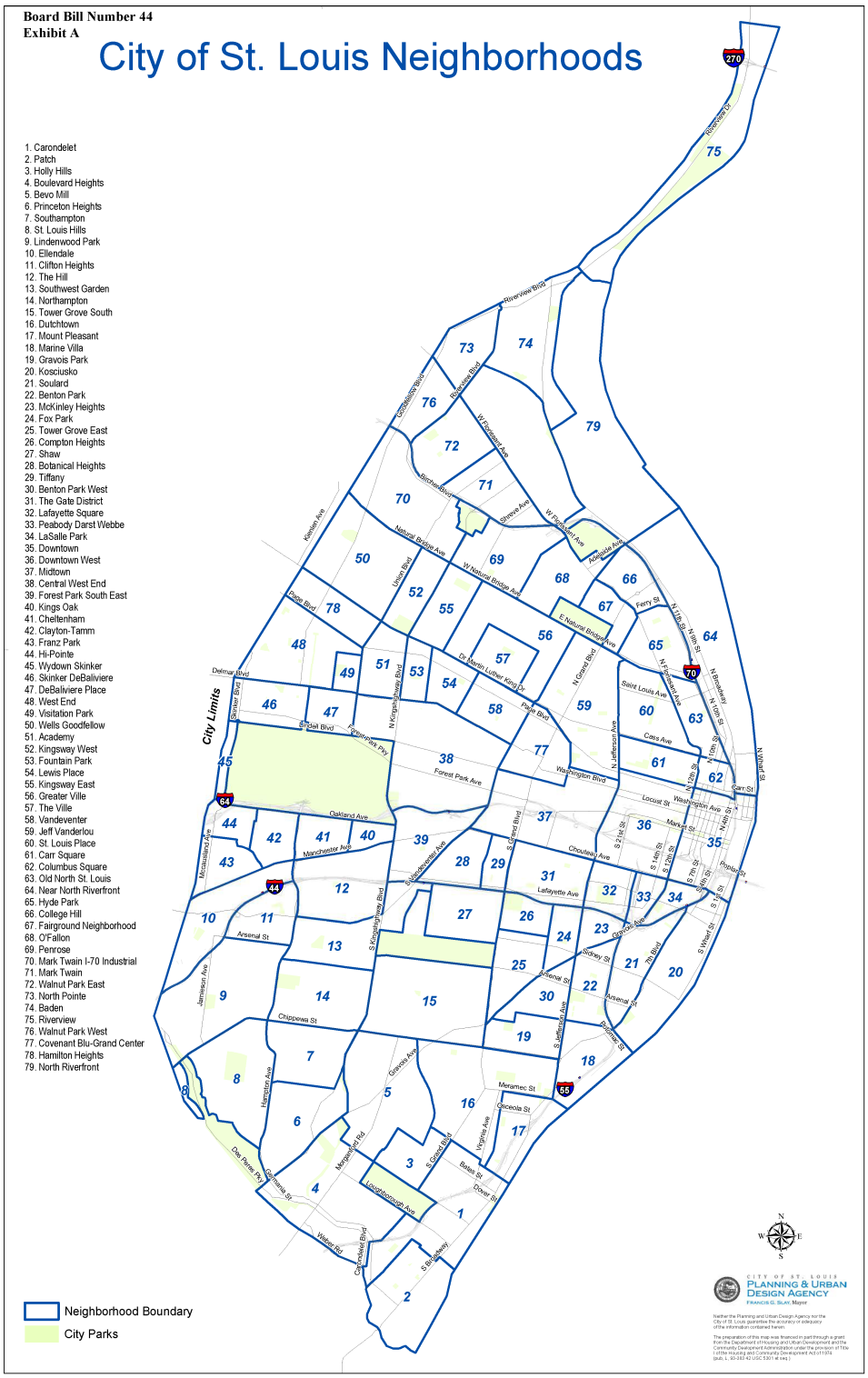
(Ord. No. 72030, § 3, 7-11-2025)

3.150.040 Report.

Three (3) years after this chapter becomes law, the Neighborhood Stabilization Division shall provide to the Board of Aldermen a report including, but not limited to, compliance with this chapter, any challenges with implementation, feedback from program participants, and recommendations for updates to the program to increase program compliance or effectiveness. Such report shall be kept by the City Register and be made publicly available on the City's website.

(Ord. No. 72030, § 4, 7-11-2025)

Exhibit A to Chapter 3.150



Chapter 3.151

NOTIFICATION TO REGISTERED NEIGHBORHOOD ORGANIZATIONS

Sections:

3.151.010 Definitions.

3.151.020 Neighborhood notices and neighborhood engagement.

3.151.010 Definitions.

A. "City" means the City of St. Louis, Missouri.

B. "City agency" means the offices, boards, agencies, departments, and similar governmental and quasi-governmental bodies of the City.

C. "Neighborhood organization" means a resident-led, nonpartisan, civic group formed for the purpose of collectively addressing common issues and interests.

C. "Notice" means any publication, notice, advertisement, placard, or public meeting agenda which is (i) contemplated by any code provision listed on Exhibit A (below) or (ii) required to be provided to registered neighborhood organizations by any subsequent ordinance.

Exhibit A: Public Notices to be sent to Registered Neighborhood Organizations

Notice	Code Reference	Department Responsible for Sending Notice
Notice of public hearing on amendment to comprehensive plan	3.48.100 (A)	Planning Commission
Notice of public hearing on additions or modifications of official map	3.48.150	Board of Aldermen
Preliminary project statement regarding proposed neighborhood improvement district	3.87.050 (B)	Board of Public Service
Notice of hearing to consider proposed improvements and assessments for a neighborhood improvement district	3.87.070 (F)	City Register
Notice of public hearing on development plan for blighted area	11.06.150	Board of Aldermen (committee to which development plan bill is assigned)
Petition for hearing regarding rooming house, boarding house, dormitory, or hotel	11.72.020	Board of Public Service
Notice of hearing on liquor license application	14.08.060 (B), (C)	Excise Division
Notice of hearing on liquor license renewal	14.08.100	Excise Division
Notice of bill vacating a street, alley, public walk, or parkway	20.14.080	Director of Streets
Notice of temporary closure of street, alley, public place, or highway	20.20.040	Director of Streets
Notice of public hearing on park improvements	22.42.120	Board of Aldermen (committee to which resolution is referred)
Removal of historic designation	24.12.040 (C)	Board of Aldermen
Notice of proposed historic district	24.16.060	Preservation Board
Notice of public hearing on designating a preservation review district	24.36.020	Board of Aldermen (committee to which preservation review district bill is assigned)
Publication of short-term rentals	25.57.090	Building Division
Notice of public hearing on conditional use permit	26.80.010 (D)	Zoning Administrator
Notice of hearing of appeals to the Board of Adjustment	26.84.040 26.84.045	Board of Adjustment
Notice of proposed zoning amendment	26.92.040	Planning Commission (shall require the Zoning Administrator to provide notice)

Notice	Code Reference	Department Responsible for Sending Notice
Notice of hearing regarding revocation of conditional use permit	26.100.030 (B)	Board of Public Service
Notice of hearing regarding revocation of variance	26.100.040 (B)	Board of Public Service

D. "Neighborhood notice" means a notice that (i) affects an address or parcel within or in the area up to two hundred (200) feet outside of and adjacent to the geographic boundaries of a registered neighborhood organization that (ii) includes the date, time, and place of any public hearing or meeting relating to the notice.

E. "Registered neighborhood organization" means an organization listed in the registration database produced and maintained by the Neighborhood Stabilization Division as part of the City's registered neighborhood organizations program.
(Ord. No. 72031, § 1, 7-11-2025)

3.151.020 Neighborhood notices and neighborhood engagement.

A. A City agency that produces a notice shall, within five (5) business days of production of that notice, provide (or cause to be provided) a neighborhood notice to any registered neighborhood organization to which the notice applies. A notice applies to a registered neighborhood organization if it affects an address or parcel within or in the area up to two hundred (200) feet outside of and adjacent to its geographic boundaries.

B. Every City agency shall periodically review the registration database and include in any of its community engagement activities any registered neighborhood organization with geographic boundaries that include any neighborhoods that are being targeted in its community engagement activities.

C. In addition to providing neighborhood notices, a City agency may, as it sees fit, develop policies, practices, and procedures that involve other communication with registered neighborhood organizations. In no event may such City agency charge a fee to registered neighborhood organizations for neighborhood notices or for participation in any such additional policies, practices, or procedures.

D. Failure of a City agency to provide a neighborhood notice to a registered neighborhood organization pursuant to this section shall not constitute a violation of this section; shall not result in any penalty or liability; and shall not invalidate, delay, or otherwise affect the validity or enforceability of any decision, determination, or action taken by the City agency.
(Ord. No. 72031, § 2, 7-11-2025)

Chapter 3.155

YOUTH COUNCIL

Sections:

3.155.010 Creation.
3.155.020 Membership.
3.155.030 Confirmation and term of office.
3.155.040 Compensation.
3.155.050 Officers and rules.
3.155.060 Purpose and duties.

3.155.010 Creation.

There is now established a council to be known as the Youth Council (hereafter referred to as the "Council") to advise the Board of Aldermen and the Mayor on issues relating to youth and children. The Council shall operate under the jurisdiction of the Board of Aldermen.
(Ord. No. 71524, § 1, 6-27-2022.)

3.155.020 Membership.

A. There is established in this City a commission for a youth advisory board consisting of youth members and adult members.

B. The youth members shall be between the ages of twelve (12) and eighteen (18) years old at time of appointment or reappointment. The Board of Aldermen and the President of the Board of Aldermen shall each appoint one youth member of the Council and the Mayor shall also have the power to appoint six (6) more youth members from underrepresented communities to ensure the Council represents the diversity of ethnicity, race, gender and sexual orientation of the people of the City, as well as the diversity of the City's educational programs (e.g., public school, private school, homeschool, alternative education, etc.). If an Aldermen does not appoint a youth member to the Council

within ninety (90) days of the start of the annual meeting of the Board of Aldermen or within ninety (90) days of the bill first being passed, the Mayor may fill the membership with an appointment of their choice.

The Council shall consist of individuals who have an understanding of the needs of young people in the City of St. Louis, or experience with children and youth programs or youth organizations, or involvement with school or community activities. The Council should encourage participation by youth from diverse backgrounds and experiences.

C. The adult members shall include:

(1) The Mayor's Office Director of Children, Youth, and Families, or their designee;

(2) The Chair of the Education and Youth Matters Committee of the Board of Aldermen, or their designee;

(3) A community member representing an organization serving the City's youth or the St. Louis Public School District.

(Ord. No. 71524, § 2, 6-27-2022.)

3.155.030 Confirmation and term of office.

A. All members of the Youth Council shall be confirmed by the Board of Aldermen and take and file an oath of office before beginning their term.

B. All adult members shall be appointed for two-year terms and there shall be no limits to the number of terms they may serve.

C. All youth members shall serve two-year terms, from one (1) annual meeting to the next, or in the case of when this chapter is passed, from the date of it passing to the next annual meeting. The terms of the youth members shall be staggered. To achieve this, in the first group of members appointed, eleven (11) shall be appointed to two-year terms, and ten (10) shall be appointed for one-year terms.

D. A vacancy may be filled for an unexpired term in the same manner as the original appointment.

(Ord. No. 71524, § 3, 6-27-2022.)

3.155.040 Compensation.

Members of the Council shall not be compensated, nor shall they be reimbursed for expenses.

(Ord. No. 71524, § 4, 6-27-2022.)

3.155.050 Officers and rules.

A. The Council shall hold meetings at least once a month.

B. The Council shall elect a president and a vice-president for one-year terms.

C. The Council may adopt rules to assist the Council in carrying out its responsibilities, including conditions for removal of members.

D. The president may appoint members of the Council and other interested parties to serve on committees.

E. In the absence of a rule to the contrary, the provisions of Robert's Rules of Order, latest edition, shall govern the proceedings of the Council.

(Ord. No. 71524, § 5, 6-27-2022.)

3.155.060 Purpose and duties.

The purpose of the Council shall be to gather all relevant information on the effects of legislation, programs, and budgets concerning the children and youth of St. Louis, and make recommendations to the Board Aldermen and the Mayor's office about the legislative impact of proposed legislation.

(1) The Youth Council shall:

a. Participate in the operation of programs as specifically authorized or directed by the Board of Aldermen or the Mayor's Office, including such programs as may be financed in whole or in part by City

financial contributions used to carry out a particular Youth Council program or accomplish a particular Youth Council goal.

b. Assess and evaluate community needs and resources relative to the protection and promotion of City youth and communicate those assessments and evaluations to the Board of Aldermen and Mayor.

c. Encourage and assist in studies designed to evaluate and recommend changes in laws, policies, procedures and practices for the purpose of improving community conditions and promoting youth development.

d. Receive program proposals from youth groups within the City.

e. Report activities to the Board of Aldermen and the Mayor as prescribed in this Section.

f. Recommend funding allocations for the execution of program proposals authorized by the Board of Aldermen.

(2) The President may designate representatives to attend community forums and meetings and provide the Youth Council with a periodic briefing.
(Ord. No. 71524, § 1, 6-27-2022.)

Chapter 3.160

POLICIES AND PROCEDURES FOR THE CONSIDERATION OF DEVELOPMENT PROPOSALS

Sections:

3.160.010	**Definitions.**
3.160.020	**Transparency.**
3.160.030	**Incentive Review Policy and Procedures.**

3.160.010 Definitions.

In addition to the words and terms defined elsewhere in this chapter, capitalized words and terms and shall have the following meanings in this chapter:

(a) "Alderperson" means a member of the Board of Aldermen, including the President of the Board of Aldermen.

(b) "Alderperson's Staff" means an employee of the Board of the Aldermen assigned to assist an Alderperson.

(c) "Applicant" means the developer or property owner that has applied for or requested approval of the Development Proposal.

(d) "Board of Aldermen" means the legislative body of the City as established pursuant to Article IV of the City Charter.

(e) "Board of Estimate and Apportionment" means the Board of Estimate and Apportionment of the City as established pursuant to Article XVI of the City Charter.

(f) "Business Retention/Attraction Project" means Development Proposals related to the retention or attraction of businesses, jobs and investment that are part of a competitive site-selection process with other jurisdictions or otherwise require the City or SLDC to review or evaluate confidential information as part of due diligence into a prospective project.

(g) "City" means The City of St. Louis, Missouri.

(h) Reserved.

(i) "City Code" means the Revised Code of the City of Saint Louis, 2020, annotated, as may be amended from time to time.

(j) "Conflict of Interest Disclosure Certification" means the certification described in subsection (d) of 3.160.030 and substantially in the form of Exhibit A (at the end of this chapter) or as may be updated from time to time by each Decision-Making Bodies' legal counsel.

(k) "Decision-Making Body" or "Decision-Making Bodies" means an agency, board, commission, instrumentality or other body that has jurisdiction by law or ordinance to approve, disapprove, recommend for approval or recommend against approval of a Development Proposal, including, without limitation, the Board of Aldermen, the Planning Commission, the Affordable Housing Commission, the EEZ Board, the LCRA, the PIEA, the Port Authority and the TIF Commission.

(l) "Development Proposal" means an application or proposal filed with the City, SLDC or any Decision-Making Body seeking approval of Tax Incentives, Preliminary Approvals, or Site-Specific Development Approvals.

(m) "Development Proposal Report" means a report relating to a specific Development Proposal meeting the requirements set forth in Section 3.160.030 of this chapter.

(n) "EEZ Board" means the Enhanced Enterprise Zone Board of the City of St. Louis, Missouri.

(o) "Fourth Degree of Consanguinity" means parents, grandparents, great-grandparents, great- great-grandparents, spouse, children, siblings, grandchildren, great-grandchildren, great-great- grandchildren,

nieces or nephews, grand-nieces or grand-nephews, aunts or uncles, great-aunts or great-uncles, and first cousins by virtue of a blood relationship or marriage.

(p) "HUDZ Committee" means the Housing, Urban Development and Zoning Committee of the Board of Aldermen, or if the Housing, Urban Development and Zoning Committee no longer exists, the committee of the Board of Aldermen with the primary responsibility for reviewing board bills and resolutions associated with Tax Incentives.

(q) "LCRA" means the Land Clearance for Redevelopment Authority of the City of St. Louis.

(r) "LRA" means The Land Reutilization Authority of the City of St. Louis, Missouri.

(s) "Material Change" means modifications on the use of eminent domain, to the length of tax abatement, to the boundaries of the Area, or any other modification which will substantially change the general nature of the project such as the addition of a residential, commercial or industrial component to the project.

(t) "PIEA" means the Planned Industrial Expansion Authority of the City of St. Louis.

(u) "Planning Commission" means the City's Planning Commission described in Chapter 3.48 of the City Code.

(v) "Port Authority" means the City of St. Louis Port Authority.

(w) "Preliminary Approval" means legislative action granting other decision making bodies the discretion to award incentives without further legislative action. This includes but is not limited to legislative approval of a Chapter 99 Redevelopment Plan, Blighting Study, or Chapter 353 Plan.

(x) "Site-Specific Development Approvals" means any rezoning, subdivision, conditional use permit, variance or other approval requested of a Decision-Making Body relating to a single parcel or grouping of parcels proposed to be developed as a unified project by the applicant for such Site-Specific Development Approval. Site-Specific Development Approvals expressly do not include health permits, building permits, and other approvals granted by civil service city employees. Additionally, Site-Specific Development Approvals do not include generally-applicable laws and regulations or approvals relating to district or neighborhood-wide planning and redevelopment efforts.

(y) "SLDC" means the St. Louis Development Corporation or such successor organization or organizations that review Development Proposals for Tax Incentives.

(z) "State Ethic Laws" means the laws of the State of Missouri governing conflicts of interests and prohibited actions by elected officials, appointed officials and employees of the City and other political subdivisions, including, but not limited to, Sections 105.452 and 105.454 of the Revised Statutes of Missouri.

(aa) "Sunshine Law" means Chapter 610 of the Revised Statutes of Missouri and any other state or federal law pertaining to the public disclosure of records possessed or maintained by the City or any Decision-Making Body.

(ab) "Tax Incentives" means real or personal property tax abatement, tax increment financing, or construction material sales tax exemption.

(ac) "TIF Commission" means the Tax Increment Financing Commission of the City of St. Louis, Missouri.

(Ord. No. 71620, § 1, 2-16-2023.)

3.160.020 Transparency.

a. All meetings of Decision-Making Bodies, except such meetings that have been closed pursuant to the Sunshine Law, shall be livestreamed and recordings and minutes of such meetings shall be made publicly available on a website maintained or otherwise utilized by the City or SLDC. Notwithstanding the foregoing, any interruption, delay or other technical difficulty that impacts the livestreaming or recording of the meeting shall not impact the validity of any actions taken at such meeting so long as the meeting is otherwise publicly accessible and complies with the provisions of the Sunshine Law. In the event of any interruption, delay or other technical difficulty in the livestreaming or recording of a meeting, the impacted Decision-Making Body shall make good faith efforts to resolve the issue promptly and alert the public of the technical difficulties through chatbox or similar feature available on the livestreaming system.

b. SLDC shall prepare an annual compliance report addressed to the Mayor and the Board of Aldermen, and present such report at a public meeting of the Housing, Urban Development & Zoning Committee or its equivalent prior to the end of each fiscal year. The annual report shall detail SLDC's efforts to comply

with the provisions of this chapter and shall be published online within forty-eight (48) hours of its submission.

c. All incentive applications filed with the St. Louis Development Corporation, excepting those attached to confidential Business Retention/Attraction Projects, shall be open to the public under Missouri's Sunshine Law (RSMO 610).

(Ord. No. 71620, § 2, 2-16-2023.)

3.160.030 Incentive Review Policy and Procedures.

(a) No Board Bill enacting or approving a Development Proposal requesting a Tax Incentive shall be filed without an accompanying Development Proposal Report prepared by SLDC.

i) The Development Proposal Report shall contain, to the extent available, the following information:

a. A memorandum including (A) a description of the Development Proposal, (B) information regarding the Applicant, including, without limitation, the Applicant's past development experience in the City and elsewhere, (C) whether the requested Development Proposal is for a preliminary or final approval (and if preliminary, what remaining approvals would be needed to implement the project described in the Development Proposal), and (D) a recommendation from SLDC or departmental staff to the Decision-Making Body as to whether the Decision Making-Body should approve or disapprove the Development Proposal, the amount and duration of an approved Tax Incentive, and the rationale and contingencies for its recommendation;

b. A summary of all known attempts to gather public input, including, without limitation, statutory public hearings and neighborhood association meetings, consultation with affected tax districts, and a description of any additional opportunities for public input (for example, if approval of a specific Development Proposal requires additional public hearings under City ordinance or state law);

i. For proposed developments with a total estimated development cost larger than Ten Million Dollars ($10,000,000), the applicant shall solicit public input prior to submitting in a manner acceptable to SLDC and SLDC shall incorporate that public input into its Development Proposal Report.

ii. If the Development Proposal requests real or personal property tax abatements or tax increment financing and relates to a project expected to cost at least One Million Dollars ($1,000,000) SLDC shall consult with Saint Louis Public Schools and the Development Proposal Report shall indicate if a position has been taken by Saint Louis Public Schools in support or opposition of the proposal.

c. If the Development Proposal is part of a Business Retention/Attraction Project, information, to extent publicly available, regarding the site selection process;

d. If the Development Proposal requests Tax Incentives and relates to a project expected to cost at least One Million Dollars ($1,000,000), SLDC staff shall provide an overview and economic analysis of the requested Tax Incentives including: i) a but for analysis of the developer's projected return with and without proposed incentives and with and without proposed community benefits; and ii) a fiscal impact analysis of tax revenues accruing to the City, St. Louis Public Schools, and other taxing districts, as well as any net new costs created by the proposed development.

e. An impact assessment regarding community benefits associated with the Development Proposal and its impact on economic equity and sustainability (which may be in the form a scorecard, checklist or similar standardized report);

f. Copies of any Letters of Support from taxing districts, unions, or elected officials. Letters of Support from Alderpersons must meet the requirements of this Ordinance; and

g. The name, phone number and email address of an SLDC or departmental staff person that members of the Decision-Making Body can contact for additional information or questions regarding the Development Proposal; and

h. Signed Conflict-of-Interest Disclosure Certifications by SLDC and any departmental staff persons involved in preparing the Development Proposal Report.

ii) Notwithstanding the foregoing, Development Proposal Reports for preliminary approvals or for Business Retention/Attraction Projects may not include all of the above-required information if such information is not yet available, complete or permitted to be publicly released. However, the persons preparing the Development Proposal Reports shall endeavor to prepare as complete of a Development Proposal Report as the circumstances permit and shall indicate in the Devel-

opment Proposal Report the reason or rationale why any of the above-described components are not included in the specific Development Proposal Report.

iii) When a draft Board Bill for introduction of a Development Proposal is submitted to the Clerk, the Development Proposal Report will be included as an exhibit.

(b) SLDC shall develop, maintain, and apply standardized redevelopment agreement provisions:

i. For all tax incentive projects, such provisions shall establish:

a. Reporting standards requiring applicants to submit verified project construction costs, total development costs, and sources of funding for the Project.

b. Monitoring compliance, in coordination with applicable City and SLDC departments, of all aspects of a redevelopment agreement and generally applicable City Code provisions including without limitation, minority contracting, workforce, prevailing wage and property maintenance provisions.

c. Enforcement policies providing that failure to fulfill the following conditions, or any other failure of the applicant to perform under the applicable redevelopment agreement, shall constitute a default, requiring the applicant to forfeit future tax incentives:

1. Failure to fulfill community benefit commitments

2. Failure to comply with the requirements of Ordinance Nos. 60275, 69427, 70767, and 71094, as may be amended or supplemented, pertaining to first source hiring, minority-owned and women-owned business participation, workforce development, and prevailing wage compliance.

3. Following project completion, for the duration of the incentive period, failure to maintain property up to code if not cured within thirty (30) days.

4. Failure to comply with the accessibility requirements of 24 CFR 8.22, which, in addition to specific protections for individuals with mobility and vision impairments, requires multifamily housing projects to be designed and constructed to be readily accessible to and usable by individuals with handicaps.

d. Enforcement policies subjecting the applicant to such claw-backs as SLDC may require in order to hold Applicants accountable for misleading representations or material changes (i.e. verified construction costs significantly below projected construction costs in the application for tax incentives)

e. A revenue protection policy indexing the tax abatement base and payments in lieu of taxes to inflation to ensure that real revenue does not fall as a result of tax abatements.

(c) SLDC may develop and maintain different standardized redevelopment agreement provisions depending on the type of Tax Incentive and the size and location of the applicable project. If any Development Proposal includes a request to deviate from standardized redevelopment agreement provisions, such differences shall be identified in the Development Proposal Report.

(d) SLDC shall, at least once per calendar year, hold a publicly accessible training seminar regarding its requirements and policies that govern redevelopment agreements.

(e) If the approval of a Tax Incentive is determined by a Decision-Making Body other than the Board of Aldermen, the applicable Decision-Making Body shall not grant final approval of a Tax Incentive until the Development Proposal Report relating to the Tax Incentive is transmitted, by electronic mail, to all members of the Board of Aldermen. If the members of the Board of Aldermen wish to recommend against a Tax Incentive within thirty (30) days after the applicable Development Proposal Report is transmitted to them, then written notice of such recommendation shall be provided to the applicable Decision-Making Body. Notwithstanding the foregoing, nothing in this Section is intended to limit a Decision-Making Body's authority to adopt further approvals as are necessary to implement previously approved Development Proposals and to approve amendments to plans, agreements and other documents, as permitted by state law, so long as such amendments do not (A) increase the amount or duration of any Tax Incentive, (B) expand the boundaries of any redevelopment area or district, (C) contemplate using eminent domain in a manner or on a property not disclosed as part of the original Development Proposal, or (D) materially change the general nature of the underlying project.

(f) No board bill or resolution relating to a Development Proposal may be sponsored by a member of the Board of Aldermen unless the applicable Alderperson files a Conflict-of-Interest Disclosure Certification with the Clerk of the Board of Aldermen prior to the introduction of the board bill or resolution or being added as an additional sponsor to the applica-

ble board bill or resolution. The Conflict-of-Interest Disclosure Certification may be signed manually or electronically by the Alderperson.

(g) All recipients for tax incentives from the City for real property development must be in good standing with the City. For purposes of this section, "good standing" shall mean that the recipient for a tax incentive from the City of St. Louis is (1) not delinquent in the payment of real property taxes properties located in the City that are owned in whole or in part by the Recipient, or is subject to a payment agreement or plan through the Collector of Revenue; (2) not delinquent in the payment of City personal property and earnings taxes; and (3) not delinquent in the payment of bills for water and refuse services provided by the City for real properties located in the City that are owned in whole or in part by the recipient. A "Recipient" shall mean with respect to real or personal property tax abatement, an entity who (1) enters into a development or redevelopment agreement with the City or a decision-making body; (2) with respect to tax increment financing, any entity that enters into a redevelopment agreement with the City; and (3) with respect to a construction material sales tax exemption, any entity that receives a project exemption certificate (Missouri Form 5060 or equivalent) from the City or a decision-making body.

i. Any Recipient who is not in good standing shall be prohibited from receiving approval from the City, Board of Aldermen, or any other decision-making body for tax incentives from the City for real property development.

ii. Recipients seeking tax incentives from the City for real property development shall provide the City, Board of Aldermen, or any other decision-making body, with evidence of "good standing," as defined in this section.

iii. Recipients shall provide all necessary information to the Collector of Revenue's Office to facilitate verification of tax status, including a complete listing of all real and personal properties owned in the City of St. Louis, whether in whole or in part by the recipient; any business entities owned in whole or in part by the recipient; and federal identification numbers, such as a tax identification number, employer identification number, or Social Security number, for any entities owned by recipient, whether in whole or in part. For the purposes of this section, "in part" shall mean an ownership interest of twenty (20) percent or more. If recipient has a lien waiver related to any taxes owed on a property, recipient shall submit said lien waiver to the Collector of Revenue's Office at the same time they submit their other verification information.

iv. Recipients shall, prior to entering into any development or redevelopment agreement, file an "Affidavit of Confirmation for Taxes Paid," with the following documents attached to the affidavit:

(a) Official copies of receipts or statements of no taxes due from the Collector of Revenue evidencing that the Recipient is not delinquent in the payment of any of the taxes set forth in Section 3.160.030(g) or is subject to a payment agreement with the Office of the Collector of Revenue; and (b) Official statements from the Collector of Revenue evidencing the recipient is not delinquent in the payment of any of the bills for services set forth in Section 3.160.030(g).

Affidavit of Confirmation for Taxes Paid

AFFIRMATION OF PAYMENT OF TAXES AND BILLS FOR SERVICES I, [full legal name of Applicant], hereby declare and affirm under penalties of perjury that I am not delinquent in the filing or payment of any real or personal property taxes on properties located in the City of St. Louis, whether wholly or partially owned by me or a corporate entity of which I hold an ownership interest of at least twenty percent (20%); any earnings taxes; and City of St. Louis water and refuse bills.

As evidence of the foregoing, I have attached hereto: official copies of receipts or statements of no taxes due from, or evidence of a payment agreement with, the Collector of Revenue evidencing that I am not delinquent in the filing or payment of any real or personal property taxes on properties located in the City of St. Louis that are wholly or partially owned by me; any earnings taxes; and official statements from the Collector of Revenue evidencing that I am not delinquent in the payment of City of St. Louis water and refuse bills.

_____

Date:

_____

Applicant's Signature

_____

Printed Name

v. Recipients who fail to comply with the requirements of this chapter shall be prohibited from receiving

tax incentives from the City or any of its decision-making bodies, for real property development until they are in good standing.

vi. The Collector of Revenue's Office, or other decision-making body, shall ensure that recipients who are not in good standing do not receive tax incentives from the City for real property development until the recipient is in good standing.

vii. At any time, upon receipt of a written complaint alleging delinquency of a recipient in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by the recipient, any earnings taxes owed to the City of St. Louis, or the payment of City of St. Louis water and refuse bills, the Collector of Revenue's Office or other decision-making body shall investigate such recipient to verify the claims contained in the complaint. If the Collector of Revenue's Office, or the decision-making body finds such claims to be true, they shall notify the recipient in writing of the outstanding taxes or bills for the City of St. Louis water and refuse services due and give the recipient seven (7) days following the recipient's receipt of notice to remit payment in full of any such outstanding taxes or bills owed which were not theretofore the documented subject of dispute between the respective departments and the applicant for tax incentives and provide proof thereof in the form of official receipts or statements of no taxes due from the Collector of Revenue evidencing payment of such taxes or bills. The notice shall be sent via U.S. Postal Service, certified mail return receipt requested, to the address provided by the recipient on the recipient's application for any tax incentives from the City for real property development. If the recipient fails to remit payment in full of such amounts within the seven-day period, the recipient shall be disqualified from receiving any tax incentives from the City for real property development, and further barred from refiling for any tax incentive from the City for real property development so long as the outstanding taxes or bills for water and refuse services remain due.

viii. Nothing herein shall either preclude or require an independent investigation by the City, Collector of Revenue's Office, Board of Aldermen, or any decision-making body of all recipients to determine if any such recipient, whether individuals or corporate entities are delinquent in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by any recipient, earnings taxes owed by the applicant, or in the payment of City of St. Louis water and refuse bills. If the City, Collector of Revenue's Office, or any decision-making body commences such an investigation and discovers that any recipient is delinquent in the filing or payment of any personal property taxes, real property taxes on any real property located within the City and owned in whole or in part by the recipient, any earnings taxes, or in the payment of City of St. Louis water and refuse bills, then the City, the Collector of Revenue's Office, or any decision-making body shall notify the recipient in writing that they are not in good standing and the reasons therefore. Notice shall be sent via U.S. Postal Service, certified mail return receipt requested, to the address provided by the recipient in their application. The recipient shall have seven (7) days following receipt of the notice to come into compliance by payment of taxes or water or refuse bills due which are not then in official dispute by the recipient, and provide official receipts or statements of no taxes due from the Collector of Revenue evidencing that they are in good standing. If the recipient fails to remit payment in full of such amounts within the seven-day period, the recipient shall be disqualified from receiving any tax incentives from the City for real property development and barred from refiling for any tax incentives from the City for real property development, so long as the outstanding taxes or bills for City of St. Louis water and refuse services remain due.

(Ord. No. 71809, § 1, 3-13-2024; Ord. No. 71620, § 3, 2-16-2023.)

Exhibit A: Form of Conflict of Interest Disclosure Certification

Conflict of Interest Disclosure Certification

(Board. Bill No. ____/Resolution No. ____

Capitalized terms used in this certification shall have the meanings set forth in Ordinance No. 71620 [Board Bill No. 64].

I, _____, the duly-elected Alderperson for the ____ ward have reviewed Ordinance No. 71620 [Board Bill No. 64] and the applicable State Ethics Laws in connection with my sponsorship of ____ [Board Bill No. ____/Resolution No. ____]. I hereby confirm that I have no conflict of interest in the approvals supported in this letter and will not receive any special monetary benefit from the approvals sup-

ported in this letter. I hereby confirm and certify, to the best of my knowledge, that my sponsorship of [Board Bill No. ____/Resolution No. ____] does not violate Ordinance No. 71620 [Board Bill No. 64] and the applicable State Ethics Laws.

_____

Alderperson, ____ ward

Chapter 3.165

MUNICIPAL IDENTIFICATION CARD PROGRAM (GATEWAY CARD)

Sections:

3.165.010 Definitions.

3.110.020 Municipal identification program established.

3.165.030 Card content, details and design.

3.165.040 Program requirements and implementation.

3.165.010 Definitions.

Administrator means the Office of the Treasurer of the City of St. Louis.

Card or *gateway card* shall mean an identification card issued by the City of St. Louis that shall display, including but not limited to, the cardholder's name, photograph, address, date of birth and expiration date. The card shall be designed in a manner to deter fraud.

Central office means the centralized office that is the primary, in-person site where City residents can apply for and obtain a card.

Resident means a person who resides in the City and has resided in the City for at least fifteen (15) days prior to applying for a card.
(Ord. No. 71953, § 1, 1-30-2025.)

3.110.020 Municipal identification program established.

The City of St. Louis shall establish a municipal identification card program to provide all residents' access to a government-issued photo identification card. The municipal identification card shall not replace state-issued identification as mandated by Missouri law for voting and purchasing of age-restricted products, nor does it grant a right to lawful presence or status, unless state law provides for the use of municipal-issued identification for these purposes.
(Ord. No. 71953, § 2, 1-30-2025.)

3.165.030 Card content, details and design.

A. The card shall display personal details, including, but not limited to, the cardholder's name, photograph, address, date of birth, and expiration date.

B. Cards shall be designed to deter fraudulent manipulation and duplication of cards.

C. Cards shall be valid for five (5) years for minors, ten (10) years for adults under the age of sixty-five (65), and indefinitely for adults over the age of sixty-five (65) so long as information provided on the Card remains current.
(Ord. No. 71953, § 3, 1-30-2025.)

3.165.040 Program requirements and implementation.

The Administrator is authorized to formulate rules and regulations for implementing the provisions of this chapter to include the application process, applicable use, benefits associated with, and guidelines for the issuance of the gateway card. Rules and regulations promulgated by the Office of Treasurer must include but not limited to the following:

A. Coordinating with an operator selected to implement and administer the card program, if applicable.

B. To obtain a card, a resident shall complete an application, under penalty of perjury, requiring proof of identity and proof of residency within the City. These document requirements would include, but are not limited to, the following items showing proof of identity and proof of residency.

1. *Proof of Identity.* To establish identity, an applicant shall be required to produce one or more of the following valid documents:

a. A U.S. or foreign passport;

b. A U.S. state driver's license;

c. A U.S. state identification card;

d. A U.S. permanent resident card;

e. A consular identification card;

f. A photo identification or driver's license card with name, address, date of birth, and expiration date issued by another country to its citizens or nationals as an alternative to a passport for re-entry to the issuing country;

g. A copy of U.S. or foreign birth certificate;

h. A Social Security card;

i. A national identification card with photo, name, address, date of birth, and expiration date;

j. A U.S. or foreign military identification card;

k. A U.S. military discharge document (DD-214);

l. A current visa issued by a government agency;

m. A U.S. individual taxpayer identification number (ITIN) authorization letter;

n. A school report card/ID card for residents seventeen (17) years old or younger;

o. A MO Department of Corrections (or the equivalent of other states) prison ID or release papers;

p. A St. Louis City Justice Center wristband or other identifying document;

q. Medical discharge paperwork or hospital/doctor visit documentation; or

r. Any other documentation that the Administrator of the program deems acceptable.

2. *Proof of Residency.* In order to establish residency, an applicant shall be required to produce one (1) or more of the following items, each of which must show the applicant's name and residential address located within the City and must be dated no more than sixty (60) days prior to the date such document is presented, except as otherwise indicated in this paragraph. For minors, a parent or guardian's proof of residency document may be used in lieu of one in their own name:

a. A utility bill;

b. A current residential property lease;

c. A local property tax statement dated within one (1) year of the date it is submitted;

d. A local real property mortgage payment receipt;

e. A bank account statement;

f. Proof that the applicant has a minor child currently enrolled in a school located within the city;

g. An employment pay stub;

h. A jury summons or court order issued by a federal or state court;

i. A federal, state, or local income tax or refund statement dated within one (1) year of the date it is submitted;

j. An insurance bill (homeowner, renter, health, life, or automobile insurance);

k. A letter from a government or social agency dated within one (1) year of the date it is submitted;

l. Written verification issued by a homeless shelter that receives city funding confirming at least thirty (30) days residency;

m. Written verification issued by a hospital, health clinic or social services agency located within the City of St. Louis confirming at least fifteen (15) days' residency;

n. Written verification issued by a domestic violence shelter to protect one's location within the city;

C. The Administrator shall determine a location for the Central Office. This location will be open to residents to apply for their card and receive it that same day. The Administrator may work with other city agencies and community centers to expand access by opening additional locations.

D. The program shall rely on best practices for securely expanding card ID access through efficient and cost-effective onsite, same-day printing.

E. The Administrator shall not retain originals or copies of records provided by an applicant to prove identity or residency for a card.

F. The City shall provide language assistance to applicants when necessary.

G. The Administrator shall identify and implement measures, including, but not limited to, staff training, community outreach, and language assistance tools, to address the needs of limited English proficient individuals in the administration of the program.

(Ord. No. 71953, § 4, 1-30-2025.)

Title 4

PERSONNEL

Constitution:

Art. 7 Public officers.

Charter:

Art. VIII City officers and employees.

Chapters:

4.02 Duties in General

4.03 Disclosure of Gifts

4.04 Oath of Office

4.05 Travel Reports for Elected Officials

4.06 Appointment and Removal

4.07 Conflict of Interest

4.08 Financial Contributions from Gaming Interests

4.09 Commissions of Office

4.10 Classified Service Plan

4.12 Motor Vehicle Responsibility

4.13 Licensing and Use of City Automobiles

4.14 Fidelity Bonds

4.15 Personnel Records

4.16 City Employees Retirement System

4.18 Firemen's Retirement System

4.19 Firefighters' Retirement Plan

4.20 Social Security

4.22 Board Of Aldermen Employees

4.24 Magistrate Court Employees

4.26 Treasury Division Employees

4.28 License Collector Employees

4.30 Parking Meter Division Employees

4.34 Recorder of Deeds Employees

4.36 Sheriff's Office Employees

4.40 House of Detention Employees

4.44 Collection Division Employees

4.46 Municipal Tax Section Employees

4.48 Circuit Attorney Office Employees

4.52 County Officer Salaries

4.54 Medical Examiner's Office Employees

4.60 Cashing of Personal Checks

4.62 Personal Service Contracts with Former Employees

4.63 Mobile Electronic Devices

4.65 Salary History of Applicants for Employment

4.68 Board of Election Commissioners Employees

4.70 Retention of Employees Performing Janitorial and Security Services

Chapter 4.02

DUTIES IN GENERAL

City Counselor Ops.: 9924

Sections:

4.02.010 Private gain and gifts.

4.02.020 Penalty for violation.

4.02.010 Private gain and gifts.

The official duties of officers and employees of the City shall be performed for the benefit of the public only and shall be discharged faithfully regardless of personal considerations. No officer or employee shall, for private gain, grant any special consideration, treatment or advantage to any person. Nor shall any officer solicit or accept any payment or gift of money or any other thing of value for any service performed in his official capacity nor for the doing of any act which he is

required by law to do. (1960 C., § 41.040; 1994 C., § 4.02.010; Ord. No. 52814, § 1, 1964.)

Charter:

Art. VIII § 12 Devotion of entire time to duties. City Counselor Ops.: 9711, 10095

4.02.020 Penalty for violation.

Any willful violation of any of the provisions of this chapter shall constitute cause for a fine of not more than five hundred dollars; suspension or removal from office or employment, or other disciplinary action. (1960 C., § 41.050; 1994 C., § 4.02.020; Ord. No. 52814, § 1, 1964.)

Chapter 4.03

DISCLOSURE OF GIFTS

Sections:

4.03.010 Definitions.
4.03.020 Gift Value for Reporting
4.03.030 Reporting of gifts—When.
4.03.040 Violation of Chapter 4.02.
4.03.050 Violation—Penalties.

4.03.010 Definitions.

As used in this chapter, the following words have the following meanings:

"Family member" means a spouse, unemancipated or emancipated child, parent, sibling, grandparent, grandchild, parent-in-law, brother-in-law, sister-in-law, nephew, niece, aunt, uncle, great uncle, great aunt, first cousin, second cousin, or the spouse of any of these persons.

"Gift" means anything of value given to an officer or employee of the City or a family member thereof at one time whether tangible or intangible which would reasonably be considered of economic value.

"Gift" includes, but is not limited to:

1. Money;
2. Products or merchandise;
3. Works of art or collectibles;
4. Stocks, bonds, notes or options;
5. Interests in real property;
6. Contracts or a promise of a future interest in a contract;
7. An interest or a promise of a future interest in a business;
8. Meals, beverages or lodging;
9. Transportation;
10. Services, including loaned employees;
11. Loans, loan guarantees, cosigning;
12. Forgiveness of a debt;
13. Discounts or rebates not extended to the public generally;
14. Free or discounted use of office facilities;
15. Loan of office equipment;
16. Any undeclined promise or offer of present or future employment;
17. Use of autos, boats, apartments or recreational or lodging facilities;
18. Intangible rights such as causes of action;
19. Licenses, patents, copyrights or any interest therein.

"Gift" does not include:

1. Gifts from any family member;
2. Campaign contributions which are reported properly and fully under RSMo Ch. 130, or as amended;
3. Contributions to any cause or organization, including a bona fide charity, made in response to a direct solicitation from City officer or employee;
4. Wages or salary paid for work or services from employment;
5. Compensation paid for goods or services to self-employed individuals;
6. Annual parking passes to government owned or controlled parking lots.

"Immediate family member" means a spouse or unemancipated child.

"Interested person" means a person who:

1. Conducts a business specifically regulated by the City; or
2. Provides goods or services to the City or any agency or department thereof for compensation or profit; or
3. Seeks employment with the City or any agency thereof; or
4. Is or will be directly and substantially affected, either financially or personally, by any existing or contemplated legislative or administrative actions, including, but not limited to, redevelopment corporations and entities seeking a permit, franchise or lease; or
5. Has or seeks contracts for providing goods or services to any department or agency of the City.

"Officer or employee of the City" means any elected or appointed officer, employee or member of a compensated or uncompensated board or commission of the City of St. Louis.

"Person" means any natural or artificial entity, including, but not limited to, individuals, partnerships, associations, trusts or corporations. (1994 C., § 4.03.010; Ord. No. 63666, § 1, 1996.)

4.03.020 Gift Value for Reporting

A. Any officer or employee of the City who accepts or whose immediate family member accepts any gift with a value of more than three hundred seventy-

Five Dollars ($375.00) from any Interested Person after the effective date of this chapter shall report such gift as required by Section 4.03.030.

B. A Gift or Gifts totaling in value more than Three Hundred Seventy-Five Dollars ($375.00) given to an Officer or Employee or an Immediate Family Member at the same or substantially the same time shall be deemed a single gift to the Officer or Employee or Immediate Family Member. (1994 C., § 4.03.020; Ord. No. 63666, § 2, 1996; Ord. No. 70379, § 1, 2016)

4.03.030 Reporting of gifts—When.

Any officer or employee of the City, and any officer or employee of the City upon behalf of any immediate family member receiving a gift from an interested person shall report such gift within thirty (30) days after receipt on the form attached to the ordinance codified in this chapter as Exhibit A. All such reports shall be considered public records. (1994 C., § 4.03.030; Ord. No. 63666, § 3, 1996.)

4.03.040 Violation of Chapter 4.02.

This chapter shall not be construed as allowing or permitting any gift to be offered or given to, or accepted by, any officer or employee of the City in violation of Chapter 4.02 of the Revised Code of the City of St. Louis, as amended. (1994 C., § 4.03.040; Ord. No. 63666, § 4, 1996.)

4.03.050 Violation—Penalties.

Any officer or employee of the City who knowingly and willingly violates this chapter and is convicted under this chapter shall be subject to a fine up to $500.00 and/or imprisonment for up to ninety (90) days. (1994 C., § 4.03.050; Ord. No. 63666, § 5, 1996.)

Chapter 4.04

OATH OF OFFICE

Constitution:

Art. 7 § 11 Oath of Office.

Charter:

Art. IX § 1 Duty of register to preserve oaths of officers and employees.

Art. VIII § 3 Oath of Office.

McQuillin:

12.97 Oaths of office

Sections:

4.04.010 Annual salaried employees.
4.04.020 Other employees.
4.04.030 Prerequisite for compensation.

4.04.010 Annual salaried employees.

Every officer and employee holding a position with an annual salary, before entering upon his duties and within thirty days after his appointment, shall take, subscribe and file with the Register an oath or affirmation as required by Section Three, Article VIII of the Charter. Each officer or employee coming within this section shall furnish to the Register correct information as to his address. (1948 C., Ch. 47, § 1; 1960 C., § 41.010; 1994 C., § 4.04.010.)

4.04.020 Other employees.

Every employee holding a position under compensation other than an annual salary, except day laborers, before entering upon his duties and within fifteen days from the date of his appointment, shall take, subscribe and file with the Register an oath or affirmation that he has all the qualifications named in the Charter and the ordinances of this City for the employment he is about to assume; that he will support the Constitution of the United States and of the state and the Charter and the ordinances of this City; and will faithfully discharge the duties of such employment. Each employee shall furnish to the Register correct information of his or her address. (1948 C., Ch. 47, § 2; 1960 C., § 41.020; 1994 C., § 4.04.020.)

4.04.030 Prerequisite for compensation.

No officer or employee coming within the scope of either Section 4.04.010 or 4.04.020 shall be entitled to compensation for work done prior to compliance with this chapter. (1948 C., Ch. 47, § 3; 1960 C., § 41.030; 1994 C., § 4.04.030.)

Chapter 4.05

TRAVEL REPORTS FOR ELECTED OFFICIALS

Sections:

4.05.010 Travel Expenses for Reporting.
4.05.020 Requirements.
4.05.030 Compliance.
4.05.040 Penalty.

4.05.010 Travel Expenses for Reporting.

On or before May 1st of each year, every elected official of the City of St. Louis shall file with the City Register a travel report detailing all travel and travel related expenses in excess of Three Hundred Seventy-

Five ($375.00) incurred by such elected officials in their official capacity or in the conduct of City business during the previous calendar year. The form for such travel reports shall be provided by the office of the Budget Director. Travel reports for the year in which this chapter is adopted shall only include those travel related expenses incurred subsequent to the chapter's effective date. (1994 C., § 4.05.010; Ord. No. 65710, § 1, 2002, Ord. No. 70379, § 2, 2016)

4.05.020 Requirements.

All travel reports filed in compliance with Section 4.05.010 shall contain the following information for each trip taken during the previous calendar year:

A. A statement detailing the travel destination; the date of the trip; the purpose of the trip and a brief description of the event or events attended; and

B. A statement as to the benefit to the City from such travel; and

C. The total amount of public funds, including any federal or state grants, spent for the travel activity; and

D. The total amount of private funds (other than personal funds of the elected official) spent for the travel activity and a statement as to the source of such private funds. (1994 C., § 4.05.020; Ord. No. 65710, § 2, 2002.)

4.05.030 Compliance.

All travel reports filed with the City Register in compliance with this chapter shall be deemed public records under the provisions of RSMo Ch. 610. (1994 C., § 4.05.030; Ord. No. 65710, § 3, 2002.)

4.05.040 Penalty.

A. Any person required in Section 4.05.010 to file a travel report who fails to file such report by the time required in Section 4.05.010 shall not be paid such compensation or receive such remuneration until the person has filed a travel report as required by Section 4.05.010.

B. Any person who knowingly misrepresents or omits any facts required to be contained in the travel report, as required by Section 4.05.020, shall be guilty of a violation of this chapter and subject to a fine of not less than Two Hundred and Fifty Dollars ($250.00) nor more than Five Hundred Dollars ($500.00). (1994 C., § 4.05.040; Ord. No. 65710, § 4, 2002.)

Chapter 4.06

APPOINTMENT AND REMOVAL

Sections:

4.06.010 Civil service to be followed.

4.06.020 Report of name, position, address and salary.

4.06.030 When officers shall be removed.

4.06.040 Depositions in removal proceedings.

4.06.050 City Counselor to represent City in removal proceeding—Exceptions.

4.06.060 Salary during suspension.

4.06.010 Civil service to be followed.

All officers and employees of the City, except where otherwise provided for in the Charter or by state law, shall be appointed and removed in accordance with and subject to the civil service requirements of the Charter. All heads of all departments and all commissions, boards and officers heretofore having had appointive authority and continuing to have such authority until the adoption date of this Code shall continue to be vested with such appointive authority and shall continue to employ the necessary personnel at the rate of compensation fixed by ordinance. Personnel shall be kept to a minimum consistent with the effective administration of the City Government. (1948 C., Ch. 2, § 1; 1960 C., § 40.010; 1994 C., § 4.06.010.)

Constitution:

Art. VI § 4 Removal of officers not subject to impeachment.

Charter:

Art. VIII § 9 Suspension and removal from office.

City Counselor Ops.: 8178

Cases:

Where one is not appointed to a particular office or position, he is not entitled to salary attached to such office or position, notwithstanding he performs some or all of the duties of the office or position. *Curry v. City of St. Louis,* 183 S.W. 2d 155 (1944).

City ordinance required reinstatement of employees granted leaves of absence to enter army. *Feuchter v. City of St. Louis,* 210 S.W. 2d 21 (1948).

Where city employee is discharged for cause, either in conformity or in violation of civil service procedure, he has no cause for injunctive relief. *State v. Mason,* 154 S.W. 2d 67 (1941).

McQuillin:

12.37 et seq. Appointment of officers.

12.250 Removal of subordinates and employees.

4.06.020 Report of name, position, address and salary.

It shall be the duty of the head of each department or office in the City Government on or before the first day of June of each year, to report to the Board of Aldermen the name, position, address and salary of each officer and employee in such department or office as of the thirtieth day of April of such year. (1948 C., Ch. 2, § 2; 1960 C., § 40.020; 1994 C., § 4.06.020.)

City Counselor Ops.: 8178

4.06.030 When officers shall be removed.

Any officer of the City who shall refuse, willfully fail or neglect to perform any duty enjoined upon him by law or ordinance, or shall in the discharge of his official duties be guilty of any fraud, extortion, oppression, favoritism, partiality, willful wrong or injustice shall be deemed guilty of a misdemeanor and shall be removed from office. (1948 C., Ch. 47, § 5; 1960 C., § 40.030; 1994 C., § 4.06.030.)

RSMo:

RSMo 106.220 et seq. County and municipal officers—Removal and impeachment.

McQuillin:

12.229 et seq. Removal and suspension of officers

4.06.040 Depositions in removal proceedings.

In cases of proceedings in the Board of Aldermen to remove officers, depositions of witnesses beyond the jurisdiction of the Board or disabled by sickness or other cause from attendance may be read at the trial if taken in conformity with the laws of the state. When taken on behalf of the accused notice shall be served on the City Counselor, if the latter is representing the prosecution. (1948 C., Ch. 47, § 39; 1960 C., § 40.040; 1994 C., § 4.06.040.)

4.06.050 City Counselor to represent City in removal proceeding—Exceptions.

Upon such trial, as provided in the preceding section, the City Counselor shall prosecute on behalf of the City unless he be the accused, in which event special counsel shall be employed by the Board of Aldermen. (1948 C., Ch. 47, § 40; 1960 C., § 40.050; 1994 C., § 4.06.050.)

4.06.060 Salary during suspension.

No officer shall receive any salary during the time he is suspended by the Mayor nor until the Board of Aldermen shall decide the case. (1948 C., Ch. 47, § 41; 1960 C., § 40.060; 1994 C., § 4.06.060.)

Chapter 4.07

CONFLICT OF INTEREST

Sections:

4.07.010 Declaration of policy.
4.07.020 Conflicts of interest.
4.07.030 Disclosure reports.
4.07.040 Filing of reports.
4.07.050 Filing of ordinance.

4.07.010 Declaration of policy.

The proper operation of municipal government requires that public officials and employees be independent, impartial and responsible to the people; that government decisions and policy be made in the proper channels of the governmental structure; that public office not be used for personal gain; and that the public have confidence in the integrity of its government. In recognition of these goals, there is hereby established a procedure for disclosure by certain officials and employees of private financial or other interests in matters affecting the City. (1994 C., § 4.07.010; Ord. No. 70054, § 1, 7-16-2015; Ord. No. 68934, § 1, 7-5-2011; Ord. No. 68409, § 1, 7-15-2009; Ord. No. 67617, § 1, 2007; Ord. No. 66691, § 1, 2005; Ord. No. 65774, § 2, 2002; Ord. No. 62391, § 1, 1991.)

4.07.020 Conflicts of interest.

A. All elected and appointed officials as well as employees of a political subdivision must comply with RSMo 105.454 on conflicts of interest as well as any other state law governing official conduct.

B. Any member of the Board of Aldermen who has a "substantial or private interest" in any measure, bill, order or ordinance proposed or pending before such governing body must disclose that interest to the Clerk of the Board and such disclosure shall be recorded in the Journal of the Board of Aldermen. Substantial or private interest is defined as ownership by the individual, his spouse, or his dependent children, whether singularly or collectively, directly or indirectly of:

1. 10% or more of any business entity; or

2. An interest having a value of $10,000.00 or more; or

3. The receipt of a salary, gratuity, or other compensation or remuneration of $5,000.00 or more, per year from any individual, partnership, organization, or

association within any calendar year. (1994 C., § 4.07.020; Ord. No. 70054, § 2, 7-16-2015; Ord. No. 68934, § 3, 7-5-2011; Ord. No. 68409, § 2, 7-15-2009; Ord. No. 67617, § 2, 2007; Ord. No. 66691, § 2, 2005; Ord. No. 65774, § 3, 2002; Ord. No. 62391, § 2, 1991.)

4.07.030 Disclosure reports.

Each elected official, candidate for elective office, the Mayor, all City employees with the authority to sign contracts on behalf of the City, members of the Board of Public Service, the Supply Commissioner, and the City Counselor shall disclose the following information by May 1 if any such transactions were engaged in during the previous calendar year:

A. For such person, and all persons within the first degree of consanguinity or affinity of such person, the date and the identities of the parties to each transaction with a total value in excess of five hundred dollars, if any, that such person had with the political subdivision, other than compensation received as an employee or payment of any tax, fee or penalty due to the political subdivision, and other than transfers for no consideration to the political subdivision.

B. The date and the identities of the parties to each transaction known to the person with a total value in excess of five hundred dollars, if any, that any business entity in which such person had a substantial interest, had with the political subdivision, other than payment of any tax, fee or penalty due to the political subdivision or transactions involving payment for providing utility service to the political subdivision, and other than transfers for no consideration to the political subdivision.

C. The Mayor, all City-wide elected officials, members of the Board of Public Service, the Supply Commissioner, and the 28 members of the Board of Aldermen, also shall disclose by May 1, or the appropriate deadline as referenced in RSMo 105.487, the following information for the previous calendar year:

1. The name and address of each of the employers of such person from whom income of one thousand dollars or more was received during the year covered by the statement;

2. The name and address of each sole proprietorship that he owned; the name, address and the general nature of the business conducted of each general partnership and joint venture in which he was a partner or participant; the name and address of each partner or coparticipant for each partnership or joint venture unless such names and addresses are filed by the partnership or joint venture with the Secretary of State; the name, address and general nature of the business conducted of any closely held corporation or limited partnership in which the person owned ten percent or more of any class of the outstanding stock or limited partnership units; and the name of any publicly traded corporation or limited partnership that is listed on a regulated stock exchange or automated quotation system in which the person owned two percent or more of any class of outstanding stock, limited partnership units or other equity interests;

3. The name and address of each corporation for which such person served in the capacity of a director, officer or receiver. (1994 C., § 4.07.030; Ord. No. 70054, § 3, 7-16-2015; Ord. No. 68934, § 3, 7-5-2011; Ord. No. 68409, § 3, 7-15-2009; Ord. No. 67617, § 3, 2007; Ord. No. 66691, § 3, 2005; Ord. No. 65774, § 4, 2002; Ord. No. 62391, § 3, 1991.)

4.07.040 Filing of reports.

A. The financial interest statements shall be filed at the following times, but no person is required to file more than one financial interest statement in any calendar year;

1. Every person required to file a financial interest statement shall file the statement annually not later than May 1 and the statement shall cover the calendar year ending the immediately preceding December 31; provided that any such person may supplement their financial interest statement to report additional interests acquired after December 31 of the covered year until the date of filing of the financial interest statement.

2. Each person appointed to office shall file the statement within thirty days of such appointment or employment covering the calendar year ending the previous December 31.

B. Financial disclosure reports giving the financial information required in Section 4.07.030 shall be filed with the Clerk of the Board of Aldermen and with the Missouri Ethics Commission. The reports shall be available for public inspection and copying during normal business hours. (1994 C., § 4.07.040; Ord. No. 70054, § 4, 7-16-2015; Ord. No. 68934, § 4, 7-5-2011; Ord. No. 68409, § 4, 7-15-2009; Ord. No. 67617, § 4, 2007; Ord. No. 66691, § 4, 2005; Ord. No. 65774, § 5, 2002; Ord. No. 62391, § 4, 1991.)

4.07.050 Filing of ordinance.

The City Register shall send a certified copy of the ordinance codified in this chapter to the Missouri Ethics Commission within ten days of its approval. (1994 C., § 4.07.050; Ord. No. 70054, § 5, 7-16-2015; Ord. No. 68934, § 5, 7-5-2011; Ord. No. 68409, § 5, 7-15-2009; Ord. No. 67617, § 5, 2007; Ord. No. 66691, § 5, 2005; Ord. No. 65774, § 6, 2002; Ord. No. 62391, § 5, 1991.)

Chapter 4.08

FINANCIAL CONTRIBUTIONS FROM GAMING INTERESTS

Circuit court ruled Ord. 63504 unconstitutional in President Casino v. City 024-02616 (3).

Sections:

4.08.010 Prohibited.

4.08.020 Definitions.

4.08.030 Exemption.

4.08.040 Penalty for Violation.

4.08.010 Prohibited.

A. It shall be unlawful for any company, business entity or person licensed by the State of Missouri or approved by the City of St. Louis to conduct gaming operations within the City of St. Louis or any person who is a director, officer, principal, partner or shareholder of a company or other business so licensed or approved by the City of St. Louis to conduct gaming operations within the City of St. Louis, or who has any financial interest in a company or other business entity so licensed or approved by the City of St. Louis to conduct gaming operations within the City of St. Louis, to make any financial contribution, in kind or otherwise, to any person holding the office of Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen, or to any candidate for the office of Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen. For purposes of this chapter, approval by the City of St. Louis to conduct gaming operations within the City of St. Louis shall include, but is not limited to: (1) authorization to conduct gaming operations at a docking or mooring location along the City-owned wharf pursuant to a lease, contract, agreement or permit; or (2) the issuance or grant of a license, permit, zoning change, zoning variance or any other approval by an agency, department or official of the City of St. Louis that is necessary to conduct gaming operations at a docking or mooring location along private property in the City of St. Louis.

B. The prohibitions set forth in Subsection A of this section shall also apply to any company, business entity or person not presently licensed by the State of Missouri or approved by the City of St. Louis to conduct gaming operations within the City of St. Louis, but which has submitted a licensing application to the State of Missouri or a proposal, bid, application or request to the Port Authority Commission, the Comptroller, or the Board of Aldermen, or to any agency or department of the City of St. Louis for any authorization or approval to conduct gaming operations within the City of St. Louis.

C. The prohibitions set forth in Subsections A and B of this section shall also apply to the immediate family of any person prohibited from making financial contributions to any person holding the office of Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen, or to any candidate for the office of the Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen.

D. It shall be unlawful for any person holding the office of Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen, or for any candidate for the office of the Mayor, Comptroller, President of the Board of Aldermen or member of the Board of Aldermen, to knowingly accept any financial contribution from any person herein prohibited from making such contributions. (1994 C., § 4.08.010; Ord. No. 63504, § 1, 1995.)

4.08.020 Definitions.

For purposes of this chapter, the following definitions shall apply:

A. The term "financial contribution" shall mean any money or other thing of value that is given to the Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen, or to any candidate for the office of Mayor, Comptroller, President of the Board of Aldermen, or member of the Board of Aldermen, regardless of whether such money or thing of value is given directly to the officeholder or candidate, to the campaign committee for said officeholder or candidate, or to any other person or committee for the benefit of such officeholder or candidate.

B. The term "candidate" shall include any person who has made public announcement of his or her intention of seeking office, any person who has formed a campaign committee for the purpose of seeking office, or any person who has filed for office.

C. The term "gaming" shall mean gambling games that are involved in the licensing to operate excursion gambling boats or to conduct gambling games on excursion gambling boats, pursuant to the provisions of RSMo 313.800 to 313.850.

D. The term "immediate family" shall mean a spouse, father, mother, brother, sister, son or daughter. (1994 C., § 4.08.020; Ord. No. 63504, § 2, 1995.)

4.08.030 Exemption.

The prohibitions of this section shall not apply to financial contributions either made by or received from shareholders of a publicly traded company provided that the shareholder owns less than five percent (5%) of the outstanding shares of said company. (1994 C., § 4.08.030; Ord. No. 63504, § 3, 1995.)

4.08.040 Penalty for Violation.

Any person who shall be convicted of any violation of the provisions of this chapter shall be punished by a fine of not more than five hundred dollars ($500.00). (1994 C., § 4.08.040; Ord. No. 63504, § 4, 1995.)

Chapter 4.09

COMMISSIONS OF OFFICE

Sections:

4.09.010 Contents of form.

4.09.020 To whom commissions shall be issued.

4.09.010 Contents of form.

The Register shall provide a blank form of commission to be filled out and signed by the Register and sealed with the seal of the City designating the office or position that any person is entitled to hold under the City by virtue of election or appointment. The commission shall be issued by the Register to persons holding any office now or hereafter made elective under the laws of this City upon receipt by the Register of a certificate of election to such office furnished by the board, person or authority having charge of elections, or upon receipt of notice in writing from the officer or person having the right to make an appointment to a particular office or position of the appointment of a certain person thereto. The commission shall state the date from which the person designated on the commission is entitled to hold the office or position mentioned on the commission. If the term of tenure thereof is known, it shall appear on the commission. The commission of the Register shall be signed by the Mayor. (1948 C., Ch. 47, § 42(part); 1960 C., § 42.010; 1994 C., § 4.09.010.)

4.09.020 To whom commissions shall be issued.

The elective and appointive officers and employees to whom commissions shall be issued are as follows: Mayor, Comptroller, Assessor, Collector, Treasurer, Supply Commissioner, Register, City Counselor, Associate City Counselors, Assistant City Counselors, President of the Board of Aldermen, Vice-President of the Board of Aldermen, City Court Judges, Clerk of the City Courts, President of the Board of Public Service, Director of Public Utilities, Director of Streets, Director of Public Welfare, Director of Public Safety, Members and Chairmen of Public Welfare Boards, Surgeons, Physicians, Lawyers, Engineers, Scientists and other experts serving the City without compensation in a consulting or other capacity either as individuals or as members of a committee or commission, Water Commissioner, Head of Street Division, Health Commissioner, Hospital Commissioner, Commissioner of Parks and Recreation, City Forester, Commissioner of Correction (Commissioner of Charities and Correction), Head of Free Legal Aid Bureau, Superintendent of the Workhouse, Superintendent of the Municipal Lodginghouse, Head of City Free Employment Services, Police Commissioner (when allowed by law), Excise Commissioner (when allowed by law), Election Commissioner (when allowed by law), Chief of Fire Department, Fire Marshal, Superintendent of Police Telephone and Telegraph System, Commissioner of Weights and Measures, Building Commissioner, Smoke Inspector, Inspector of Boilers and Elevators, Building Inspector, members of the Board of Examining Engineers, members of the Board of Examining Plumbers, Chief Plumbing Inspector, Secretary of the Complaint Board, Secretary of the Efficiency Board, Agent and Visitors of the Board of Children's Guardians, City surveyors, members of City Plan Commission, members of the Board of Equalization, members of Merchants and Manufacturers Tax Equalization Board, probation officers of the City Courts, City Chemist, City Bacteriologist and Captain of the Harbor Boat. (1948 C., Ch. 47, § 42(part); 1960 C., § 42.020; 1994 C., § 4.09.020.)

Editor's Note:

Section has been editorially amended to reflect the change in the department of streets.

Chapter 4.10

CLASSIFIED SERVICE PLAN

Editor's Note:

Ord. No. 71099, approved February 27, 2020, amended the Code by, in effect, repealing former Ch. 4.10, §§ 4.10.010—4.10.280 and 4.10.300, and adding a new Ch. 4.10. Former Ch. 4.10 pertained to similar subject matter, and derived from the 1994 Code, §§ 4.10.010, 4.10.020, 4.10.040—4.10.270; Ord. No. 70791, approved June 29, 2018; Ord. No. 70433, approved January 30, 2017; Ord. No. 70285, approved June 10, 2016; Ord. No. 68948, approved July 12, 2011; Ord. No. 68711, approved July 9, 2010; Ord. No. 68540, approved December 15, 2009; Ord. No. 68126, approved October 10, 2008; Ord. No. 67922 of 2008; Ord. No. 67807 of 2007; Ord. No. 67666 of 2007; Ord. No. 67333 of 2006; and Ord. No. 66272 of 2004.

Constitution: Art. 7 Public officers.

Charter: Art. VIII City officers and employees.

Prior history:

Ords. 44800, 44878, 45554, 46210, 46211, 46334, 47064, 47555, 47744, 47956, 48658, 49860, 50260, 50661, 52764, 54466, 55168, 55369, 55770, 55971, 56172, 56473, 57276, 57650, 57824, 58040, 58054, 58083, 58159, 58678, 58828, 59135, 59985, 61248, 61414, 61711, 61999, 62657, 62986, 63118, 63705, 63959, 64954, 65521, 66094, 67665, 68284, 68564, 69949; 1948 C. Ch. 47 §§ 7, 9—30, 43—54; 1960 C. Ch. 44

Sections:

4.10.010 **Alphabetical list of classes.**
4.10.020 **Official pay schedule for classification grades.**
4.10.030 **Education reimbursement.**
4.10.040 **Salary range limitations.**
4.10.050 **Starting salary.**
4.10.060 **Promotion, demotion, reallocation, transfer and temporary promotion.**
4.10.070 **Salary adjustment.**
4.10.080 **Income sources.**
4.10.090 **Conversion.**
4.10.100 **Payment of salaries.**
4.10.110 **Changes to classification plan.**
4.10.120 **Payroll forms.**
4.10.130 **Certification of payroll.**
4.10.140 **Minimum work hours.**
4.10.150 **Overtime.**
4.10.160 **Holidays.**
4.10.170 **Vacation.**
4.10.180 **Sick leave.**
4.10.190 **Medical leave.**
4.10.200 **Military leave.**
4.10.210 **Leaves of absence and family/medical leave.**
4.10.220 **Insurance benefits.**
4.10.230 **Death benefit.**
4.10.240 **Workers' compensation and disability leave.**
4.10.250 **Jury and witness leave.**
4.10.260 **Deferred compensation.**
4.10.270 **Retirement.**
4.10.280 **Police Division.**

4.10.010 Alphabetical list of classes.

(a) Beginning with the effective date of the ordinance from which this chapter derives, the following positions in the City Service with bi-weekly rates are hereby allocated as listed below in accordance with the classification plan by the Director of Personnel to a grade and overtime code in the following section with rates established in 4.10.020 of this chapter in accordance with Section 3(a) and Section 9(e) of Article XVIII of the City Charter.

Title	Code	Grade/Schedule	OVTM	
Abatement and Exemption Analyst	1424	15 G	3	
Account Clerk	1142	11 G	3	
Accountant	1442	14 G	2	
Accounting Coordinator	1444	15	15 G	1
Accounting Manager	1446	17 M	1	
Accounting Officer	1447	16 M	1	
Accounting Supervisor	1443	15 M	1	
Administrative Assistant I	1621	13 G	3	
Administrative Assistant II	1622	14 G	3	
Administrative Assistant III	1623	15 M	1	
Administrative Assistant to the Mayor	1721	14 G	1	

Title	Code	Grade/Schedule	OVTM
Air Pollution Inspector	3922	13 G	3
Airfield Maintenance Foreman	3322	14 G	3
Airfield Maintenance Supervisor	1638	15 M	2
Airfield Maintenance Worker	3324	12 G	3
Airfield Maintenance Worker (Lead)	3327	13 G	3
Airfield Operations Specialist	1631	14 G	3
Airfield Operations Specialist (Lead)	1635	15 G	3
Airfield Painter/Maintenance Worker	3247	36 T	3
Airfield Painter/Maintenance Worker (Lead)	3248	37 T	3
Airport Assistant Director Air Service and			
Business Development	1688	19 M	1
Airport Assistant Director Airside Operations	1634	19 M	1
Airport Assistant Director Community Programs	1655	19 M	1
Airport Assistant Director Finance and Accounting	1651	19 M	1
Airport Assistant Director Landside Operations	1633	19 M	1
Airport Assistant Director Planning and Engineering	1653	19 M	1
Airport Building Maintenance Supervisor	1684	14 M	2
Airport Deputy Director Finance and Administration	1686	21 M	1
Airport Deputy Director Operations	1639	21 M	1
Airport Deputy Director Planning and Development	1652	21 M	1
Airport Emergency Preparedness Coordinator	1630	14 G	3
Airport Fleet Maintenance Manager	3273	16 M	1
Airport Operations Supervisor	1636	16 M	2
Airport Planning Manager	1656	18 M	1
Airport Police Captain	2145	15 M	1
Airport Police Chief	2147	17 M	1
Airport Police Lieutenant	2144	14 G	2
Airport Police Officer	2141	12 G	3
Airport Police Sergeant	2143	13 G	3
Airport Power Plant Manager	1687	16 M	1
Airport Properties Division Manager	1654	18 M	1
Airport Properties Inspector	4222	13 G	3
Airport Properties Specialist	1681	14 G	3
Airport Properties Supervisor	1682	15 G	3
Airport Risk Manager	1683	15 G	3
Airport Traffic Officer	2172	9 G	3
Animal Care and Control Officer	2113	11 G	3
Animal Regulation Center Supervisor	2116	14 G	3
Arborist	3654	15 G	1
Architect	4433	15 G	1
Architectural Manager	4434	17 M	1
Assessor	1439	20 M	1
Asset Manager	1486	19 M	1
Assistant Fire Chief	2235	81 F	1
Assistant Mechanical Maintenance Worker	3412	9 G	3
Attorney I	2361	15 G	1
Attorney II	2362	17 G	1
Attorney III	2363	18 G	1
Attorney IV	2367	20 G	1
Attorney Manager	2364	20 M	1
Audit Coordinator	1474	15 G	1

Title	Code	Grade/Schedule	OVTM	
Audit Manager	1475	17 M	1	
Audit Supervisor	1473	16 M	1	
Auditor	1472	14 G	2	
Battalion Fire Chief	2227	77 F	2	
Benefits Clerk	1541	10 G	3	
Benefits Specialist	1545	12 G	3	
Billing Supervisor	1192	14 G	3	
Blacksmith	3231	36 T	3	
Budget Analyst	1461	14 G	3	
Budget Analyst (Senior)	1462	15 G	3	
Budget Director	1468	21 M	1	
Budget Manager	1466	16 M	1	
Building Inspection Manager I	3856	16 M	1	
Building Inspection Manager II	3857	17 M	1	
Building Inspection Supervisor	3855	15 G	3	
Building Inspector I	3851	36 T	3	
Building Inspector II	3852	37 T	3	
Building Maintenance and Operations Supervisor	3753	14 G	3	
Building Maintenance Worker	3411	12 G	3	
Buyer	1223	14 G	3	
CAD Technician	4422	12 G	3	
Capital Improvement Project Liaison	4344	15 G	3	
Carpenter	3211	36 T	3	
Carpenter (Lead)	3212	37 T	3	
Carpenter Foreman	3213	39 T	3	
	Chemist	3552	14 G	2
	Chemistry Supervisor	3553	16 G	1
	Chief Medical Officer	5687	19 M	1
	Chief of Staff	1737	23 M	1
	Chief Paramedic	5721	17 M	1
	Chief Plan Examiner	4233	17 M	1
	City Counselor	2368	22 M	1
	City Court Administrator	1676	16 M	1
	City Court Judge	2369	17 G	1
	City Planning Executive	4143	19 M	1
	City Register	1661	14 M	1
	City Surveyor	4293	15 G	3
	Civil Engineer I	4241	14 G	2
	Civil Engineer II	4242	15 G	1
	Civil Engineer III	4243	16 G	1

Title	Code	Grade/Schedule	OVTM	
	Civil Engineer III/Computer Network Coordinator	4244	16 G	1
	Civil Engineer Supervisor	4245	16 M	1
	Clerical Aide	1111	5 G	3
	Clerical Supervisor	1115	13 G	3
	Clerk Typist	1122	9 G	3
	Clerical Coordinator	1123	10 G	3
Client Service Coordinator I		6147	13 G	3
Client Service Coordinator II		6148	14 G	3
CODIS Administrator		2541	15 G	1
Commissioner of Buildings		3858	20 M	1
Commissioner of Civilian Oversight		2179	17 M	1
Commissioner of Communications		1811	17 M	1
Commissioner of Community Mediation		2389	17 M	1
Commissioner of Corrections		2373	20 M	1
Commissioner of Emergency Management		2181	17 M	1
Commissioner of Equipment Services		3277	19 M	1
Commissioner of Excise		2193	17 M	1
Commissioner of Facilities Management		3755	19 M	1
Commissioner of Forestry		3644	19 M	1
Commissioner of Health		5688	21 M	1
Commissioner of Parks		3645	19 M	1
Commissioner of Recreation		7137	19 M	1
Commissioner of Refuse		3135	19 M	1
Commissioner of Streets		4248	19 M	1
Commissioner of Supply		1229	18 M	1
Commissioner of Towing		3349	17 M	1
Commissioner of Traffic		4283	19 M	1
Commissioner of Violence Prevention		2153	20 M	1
Commissioner of Water		4329	20 M	1
Commissioner on the Disabled		6163	17 M	1
Communications Center Coordinator		2161	14 G	3
Communications Equipment Installer		1869	31 T	3
Communications Service Center Manager		1865	18 M	1
Communications Service Center Specialist I		1861	13 G	3
Communications Service Center Specialist II		1862	15 G	3
Communications Service Center Supervisor		1864	16 M	1
Community Development Planner I		4121	13 G	3
Community Development Planner II		4122	14 G	3
Community Development Planner III		4126	15 G	1
Community Development Research Analyst		4184	15 G	3
Community Development Specialist		4124	14 G	3
Community Development Supervisor		4127	15 M	1
Community Health Worker		5624	10 G	3
Community Program Aide		6171	10 G	3
Comptroller		1489	2 E	1

Title	Code	Grade/Schedule	OVTM
Computer Operations Supervisor	1327	13 M	1
Computer Operator I	1323	10 G	3
Computer Operator II	1324	11 G	3
Computer Programmer I	1331	13 G	3
Computer Programmer II	1332	14 G	3
Concrete Finisher	3283	36 T	3
Construction and Maintenance Manager	3759	17 M	1
Construction Equipment Foreman I	3334	39 T	3
Construction Equipment Foreman II	3335	40 T	3
Construction Equipment Operator I	3332	35 T	3
Construction Equipment Operator II	3333	36 T	3
Construction Project Leader	4346	15 G	3
Contract Compliance Officer	1662	14 G	2
Contract Specialist	1663	11 G	3
Contract Supervisor	1664	15 G	3
Contract Supervisor for the Comptroller	1665	16 M	1
Correctional Case Worker	2337	12 G	3
Correctional Chief of Security	2338	15 M	1
Correctional Classification Assistant	2333	11 G	3
Correctional Investigator	2339	12 G	3
Correctional Officer I	2331	11 G	3
Correctional Officer II	2332	12 G	3
Correctional Program Manager	2374	16 M	1
Correctional Shift Supervisor	2335	14 G	3
Correctional Training Coordinator	2381	14 G	2
Correctional Training Officer	2384	13 G	3
Correctional Unit Manager	2375	15 M	1
Court Room Clerk	1118	9 G	3
Court Room Clerk Coordinator	1119	10 G	3
Criminal Intelligence Analyst	2611	16 G	1
Criminal Intelligence Manager	2613	17 M	1
Criminalist	2545	14 G	3
Criminalist Supervisor	2546	16 M	1
Cultural Resources Director	1674	18 M	1
Custodian	3711	6 G	3
Custodian (Lead)	3712	7 G	3
Customer Service Manager	1189	16 M	1
Customer Service Representative I	1116	10 G	3
Customer Service Representative II	1117	11 G	3
Customer Service Supervisor	1185	13 M	2
Data Entry Supervisor	1315	11 G	3
Data Processing Manager	1365	18 M	1
Deputy Airport Police Chief	2146	16 M	1
Deputy Assessor	1435	18 M	1
Deputy Budget Director	1467	17 M	1
Deputy Chief Paramedic	5724	16 M	1
Deputy City Counselor	2366	21 M	1
Deputy City Engineer	4316	21 M	1
Deputy Commissioner of Buildings	3859	19 M	1
Deputy Commissioner of Corrections	2376	19 M	1
Deputy Commissioner of Equipment Services	3275	17 M	1

Title	Code	Grade/Schedule	OVTM
Deputy Commissioner of Refuse	3134	17 M	1
Deputy Commissioner of Supply	1228	17 M	1
Deputy Comptroller	1488	21 M	1
Deputy Director of Civil Rights Enforcement Agency	6138	16 M	1
Deputy Director of Employment and Training	6228	18 M	1
Deputy Director of Human Services	6168	20 M	1
Deputy Director of Personnel	1528	20 M	1
Deputy Director of Planning and Urban Design	4188	19 M	1
Deputy Director of Public Safety	2152	20 M	1
Deputy Fire Chief	2231	78 F	1
Deputy Marshal	2121	10 G	3
Detention Center Superintendent	2371	18 M	1
Digital/Printing Press Operator	2412	31 T	3
Director of Airports	1658	23 M	1
Director of Civil Rights Enforcement Agency	6139	18 M	1
Director of Community Development	4144	22 M	1
Director of Employment and Training	6229	20 M	1
Director of Health and Hospitals	5589	23 M	1
Director of Human Services	6169	21 M	1
Director of Information Technology	1367	21 M	1
Director of Parks, Recreation and Forestry	3649	21 M	1
Director of Personnel	1529	22 M	1
Director of Planning and Urban Design	4186	20 M	1
Director of Public Safety	2151	22 M	1
Director of Public Utilities	4349	21 M	1
Director of Streets	4249	21 M	1
Disabled Services Representative	6173	11 G	3
DNA Technical Leader	2548	15 G	1
Document Specialist	5643	11 G	3
Electrical Engineer	4261	15 G	1
Electrical Engineer (Senior)	4262	16 G	1
Electrical Inspection Supervisor	3815	15 G	3
Electrical Inspector I	3811	36 T	3
Electrical Inspector II	3812	38 T	3
Electrical Supervisor	3226	15 M	2
Electrician	3223	36 T	3
Electrician (Lead)	3224	38 T	3
Electrician Foreman	3225	39 T	3
Electronic Control Systems Technician	3442	36 T	3
Electronic Instrument Technician	3443	36 T	3
Electronic Technician Supervisor	3444	39 T	3
Emergency Management Specialist	2183	15 G	1
Emergency Management System Technician	2182	36 T	3
Employment and Training Representative	6211	12 G	3
Employment and Training Specialist I	6213	13 G	3
Employment and Training Specialist II	6214	14 G	3
Employment and Training Specialist III	6215	15 G	3
Employment and Training Specialist IV	6218	17 G	1
EMS Communications Supervisor	5723	14 M	2
EMS Dispatcher	5731	11 G	3
EMS Inventory Supervisor	5722	12 G	3

Title	Code	Grade/Schedule	OVTM
EMS Lead Dispatcher	5732	12 G	3
EMS Training Specialist	5719	14 G	3
EMT (Emergency Medical Technician)	5714	11 G	4
Engineering Manager I	4312	17 M	1
Engineering Manager II	4313	18 M	1
Engineering Technician	4225	14 G	3
Engineering Technician Supervisor	4226	15 M	2
Environmental Court Coordinator	3881	15 M	1
Environmental Engineer	4254	15 G	1
Environmental Health Officer	5622	13 G	3
Environmental Health Supervisor	5638	14 G	2
Environmental Regulatory Compliance and Safety			
Manager	1659	19 M	1
Epidemiologist	5642	16 G	1
Estimator	4223	13 G	3
Executive Assistant I	1628	16 G	1
Executive Assistant II	1629	17 M	1
Executive Assistant to the Mayor	1725	20 M	1
Executive Director for Development	1728	23 M	1
Executive Director for Operations	1736	23 M	1
Executive Director of the Affordable Housing			
Commission	1722	19 M	1
Executive Director of the Criminal Justice			
Coordinating Council	2388	17 M	1
Executive Secretary I	1134	12 G	3
Executive Secretary II	1135	14 G	2
Executive Secretary to the Comptroller	1136	14 G	2
Executive Secretary to the Mayor	1727	21 M	1
Exercise Physiologist	2572	13 G	3
Facilities Maintenance Worker	3419	35 T	3
Financial Analyst	1482	15 G	1
Financial Supervisor/Information Systems Coordinator	1484	16 M	1
Fingerprint Manager	2549	16 M	1
Fingerprint Technician Supervisor	2557	14 G	3
Fire Alarm Manager	2216	74 F	1
Fire Captain	2226	72 F	3
Fire Commissioner	2239	83 F	1
Fire Equipment Dispatcher	2212	69 F	3
Fire Private	2222	69 F	3
Firearms Examiner	2551	13 G	3
Firearms Examiner Supervisor	2553	16 M	2
First Assistant Comptroller	1487	20 M	1
Fiscal Manager	1448	18 M	1
Fiscal Officer I	1492	16 G	1
Fiscal Officer II	1493	17 G	1
Fiscal Operations Support Manager	1491	19 M	1
Fitness Programs Supervisor	2573	14 G	3
Fleet Body Repair Specialist	3288	35 T	3
Fleet Maintenance Foreman I	3266	39 T	3
Fleet Maintenance Foreman II	3267	40 T	3
Fleet Maintenance Manager	3274	16 M	1

Title	Code	Grade/Schedule	OVTM
Fleet Maintenance Parts Specialist	3287	31 T	3
Fleet Maintenance Parts Supervisor	3284	33 T	3
Fleet Maintenance Technician I	3261	31 T	3
Fleet Maintenance Technician II	3262	35 T	3
Fleet Maintenance Technician III	3263	37 T	3
Fleet Maintenance Technician IV	3265	38 T	3
Food Establishment Inspector	5631	13 G	3
Forensic Science Technician	2555	11 G	3
Forestry Foreman	3641	11 G	3
Forestry Supervisor	3622	13 G	3
Gardener	3632	10 G	3
Gardener Supervisor	3633	11 G	3
GIS Specialist I/Graphic Designer	4111	13 G	3
GIS Specialist II/Graphic Designer	4112	14 G	3
GIS/Graphic Design Manager	4113	15 M	1
GIS Systems Manager	1361	17 M	1
Government Services Administrator	1627	17 M	1
Government Services Analyst	1625	16 G	1
Grants Administrator	1453	15 G	1
Grants Manager	1455	17 M	1
Graphic Arts Technician	4187	37 T	3
Graphic Designer	4182	12 G	3
Health Care Compliance Specialist	5515	14 G	3
Health Education Planner	5696	12 G	3
Health Marketing Administrator	5685	16 G	1
Health Planning Executive	5571	17 M	1
Health Services Manager I	5681	17 M	1
Health Services Manager II	5682	18 M	1
Heavy Equipment Operator I	3325	10 G	3
Heavy Equipment Operator II	3326	11 G	3
Historic Preservation Planner I	4192	13 G	3
Historic Preservation Planner II	4193	14 G	3
Housekeeping Manager	3719	14 M	2
Housekeeping Supervisor I	3715	11 G	3
Housekeeping Supervisor II	3716	13 G	3
Housing Development Analyst	4125	14 G	3
Housing Development Analyst (Senior)	4128	15 G	3
HRIS Analyst	1512	16 G	1
HRIS and Records Management Manager	1525	19 M	1
Human Relations Specialist	6131	13 G	3
Human Resources Generalist	1518	14 G	3
Human Resources Generalist (Senior)	1519	15 G	3
Human Resources Manager	1523	18 M	1
Human Resources Manager (Senior)	1524	19 M	1
Human Resources Specialist	1514	14 G	3
Human Resources Specialist (Senior)	1515	15 G	3
Human Resources Supervisor	1516	16 G	1
HVAC Foreman	3418	39 T	3
HVAC Mechanic	3417	36 T	3
Information Security Administrator	1369	17 G	1
Information Systems Administrator	1362	20 M	1

Title	Code	Grade/Schedule	OVTM
Information Systems Coordinator	1322	13 G	3
Information Systems Support Manager	1363	19 M	1
Internet Services Manager	1368	18 M	1
Inventory Control Technician	1212	9 G	3
Inventory Coordinator	1215	10 G	3
Inventory Supervisor	1213	11 G	3
Investigative Assistant	2579	13 G	3
Labor Foreman I	3121	12 G	3
Labor Foreman II	3125	13 G	3
Labor Supervisor	3128	14 M	2
Laboratory Director	3555	17 M	1
Laboratory Manager	2542	17 M	1
Laboratory Supervisor	5463	16 M	1
Laboratory Technician	3554	11 G	3
Laborer	3111	8 G	3
Landscape Supervisor	3634	14 G	3
Latent Fingerprint Examiner	2554	14 G	3
Lead Abatement Inspector	5626	13 G	3
Lead Abatement Worker	5625	11 G	3
Lead Abatement Worker (Lead)	5627	12 G	3
Legal Investigator I	2351	13 G	3
Legal Investigator II	2352	14 G	3
Legal Secretary	1151	12 G	3
Librarian	2575	14 G	3
Licensed Practical Nurse	5181	11 G	3
Lifeguard	7111	5 G	3
Lifeguard Supervisor	7112	7 G	3
Liquor Control Officer	2191	12 G	3
Liquor Control Supervisor	2192	14 G	3
Locksmith	3416	35 T	3
Machine Shop Foreman	3238	38 T	3
Machinist	3233	36 T	3
Mail Room Supervisor	1186	14 G	3
Mayor	1739	3 E	1
Mechanical Engineer	4271	15 G	1
Mechanical Engineer (Senior)	4272	16 G	1
Mechanical Equipment Inspection Supervisor	3845	15 M	1
Mechanical Inspector I	3841	36 T	3
Mechanical Inspector II	3843	38 T	3
Mechanical Maintenance Foreman	3415	38 T	3
Mechanical Maintenance Worker	3413	35 T	3
Medical Service Coordinator	6149	14 G	3
Medical Technologist	5461	13 G	3
Medical Technologist (Lead)	5462	14 G	3
Messenger/Mail Clerk	1181	5 G	3
Microcomputer Support Specialist	1328	11 G	3
Municipal Parking Garage Manager	3133	14 M	1
Neighborhood Development Executive	3872	17 M	1
Neighborhood Improvement Specialist	3871	14 G	3
Neighborhood Improvement Supervisor	3873	15 G	3
Network Systems Manager	1364	19 M	1

Title	Code	Grade/Schedule	OVTM	
Nurse Practitioner	5131	16 G	1	
Nutrition Program Coordinator	5664	14 G	2	
Painter	3242	36 T	3	
Painter (Lead)	3243	37 T	3	
Painter Foreman	3245	39 T	3	
Paralegal	2365	13 G	3	
Paralegal Supervisor	2385	14 G	3	
Paramedic	5717	13 G	4	
Paramedic Crew Chief	5718	14 G	4	
Paramedic Supervisor	5716	15 G	4	
Park Facilities Maintenance Superintendent	3617	16 M	1	
Park Maintenance Manager	3618	16 M	1	
Park Ranger	2132	10 G	3	
Park Ranger Supervisor	2133	11 G	3	
Park Supervisor I	3612	12 G	3	
Park Supervisor II	3613	13 G	3	
Parking Garage Attendant	3114	6 G	3	
Parking Garage Attendant (Lead)	3115	8 G	3	
Parkkeeper	3611	11 G	3	
Parole and Probation Officer	2321	13 G	3	
Parole and Probation Supervisor	2324	15 M	1	
Payroll Coordinator	1174	12 G	3	
Payroll Manager	1449	17 M	1	
Payroll Specialist	1172	11 G	3	
Payroll Supervisor	1173	14 G	3	
Permit Supervisor	1673	14 M	1	
Personal Property Appraisal Manager	1415	15 M	1	
Personal Property Appraisal Supervisor	1413	14 M	2	
Personal Property Appraiser I	1411	12 G	3	
Personal Property Appraiser II	1412	13 G	3	
Pest Control Worker	5699	9 G	3	
Photographer I	2558	10 G	3	
Photographer II	2559	11 G	3	
Physician	5553	18 G	1	
Pipefitter	3254	36 T	3	
Plan Examiner	4232	14 G	2	
Plumber	3251	36 T	3	
Plumber Foreman	3253	39 T	3	
Plumbing Inspection Supervisor	3824	15 M	1	
Plumbing Inspector I	3821	36 T	3	
Plumbing Inspector II	3822	38 T	3	
Police Assistant Chief	2536	81	D	1
Police Captain	2526	74	D	1
Police Commissioner	2538	83	D	1
Police Dispatch Manager	2568	15 M	1	
Police Dispatch Supervisor	2566	13 G	3	
Police Dispatcher I	2563	10 G	3	
Police Dispatcher II	2564	11 G	3	
Police Lieutenant	2524	72	D	1
Police Lieutenant Colonel	2534	78	D	1
Police Major	2532	77	D	1

Title	Code	Grade/Schedule	OVTM	
Police Officer	2514	69	D	3
Police Planner I	2591	13 G	3	
Police Planner II	2592	15 G	3	
Police Planning Manager	2593	17 M	1	
Police Probationary Officer	2513	69	D	3
Police Sergeant	2522	71	D	3
Polygraph Examiner	2576	14 G	3	
President, Board of Aldermen	1748	1 E	1	
President, Board of Public Service	4348	23 M	1	
Printing and Duplicating Graphics Manager	2413	15 M	1	
Printing Supervisor	2414	13 G	3	
Prisoner Processing Clerk	2582	9 G	3	
Prisoner Processing Supervisor	2584	13 G	3	
Probationary Fire Equipment Dispatcher	2211	69 F	3	
Probationary Fire Private	2221	69 F	3	
Process Control Specialist	4265	15 G	2	
Procurement Specialist	1225	13 G	3	
Procurement/Purchasing Manager I	1226	16 M	1	
Procurement/Purchasing Manager II	1227	17 M	1	
Program Coordinator	1698	14 G	3	
Program Manager I	1693	15 M	1	
Program Manager II	1694	16 M	1	
Program Specialist I	1696	11 G	3	
Program Specialist II	1691	12 G	3	
Program Supervisor	1692	13 G	3	
Program Worker	7312	5 G	3	
Programmer/Analyst I	1341	15 G	2	
Programmer/Analyst II	1342	16 G	2	
Programmer/Analyst III	1343	17 G	2	
Public Health Education Coordinator	5648	15 G	2	
Public Health Educator	5695	15 G	3	
Public Health Intake Supervisor	5646	15 G	2	
Public Health Intake Worker	5647	12 G	3	
Public Health Nurse I	5651	14 G	3	
Public Health Nurse II	5653	15 G	3	
Public Health Nurse III	5654	16 G	2	
Public Health Nursing Supervisor	5655	17 M	1	
Public Health Program Representative	5693	13 G	3	
Public Health Program Specialist	5691	14 G	3	
Public Health Program Supervisor	5694	15 G	2	
Public Information Manager	1617	18 M	1	
Public Information Officer I	1614	13 G	2	
Public Information Officer II	1615	15 G	1	
Public Information Officer Supervisor	1616	15 M	1	
Public Information Officer to the Comptroller	1618	15 G	1	
Public Information Officer to the Mayor	1613	16 G	1	
Public Nuisance Inspector	3861	10 G	3	
Public Safety Dispatcher I	2175	10 G	3	
Public Safety Dispatcher II	2176	11 G	3	
Public Safety Dispatcher III	2177	12 G	3	
Public Safety Specialist	2136	15 G	1	

Title	Code	Grade/Schedule	OVTM
Real Estate Records Clerk	1668	10 G	3
Real Estate Records Manager	1426	14 M	1
Real Estate Specialist	1667	13 G	3
Real Property Appraisal Manager	1429	17 M	1
Real Property Appraisal Supervisor I	1428	15 M	1
Real Property Appraisal Supervisor II	1427	16 M	1
Real Property Appraiser I	1421	13 G	3
Real Property Appraiser II	1422	14 G	3
Receptionist	1161	8 G	3
Receptionist to the Mayor	1162	9 G	3
Records Retention Supervisor	1187	14 G	3
Recreation Area Manager	7118	16 M	1
Recreation Assistant	7116	7 G	3
Recreation Leader	7117	10 G	3
Recreation Supervisor I	7114	12 G	3
Recreation Supervisor II	7115	14 M	2
Refuse Route and Safety Coordinator	3931	11 G	3
Refuse Superintendent	3131	16 M	1
Registered Nurse I	5121	14 G	3
Registered Nurse II	5122	15 G	3
Research Analyst to the Mayor	1729	16 G	1
Safety Officer I	1531	13 G	3
Safety Officer II	1532	14 G	3
Safety Officer III	1533	15 G	3
School Crossing Guard	2174	5 G	3
Secretary and Stenographer to the Mayor	1138	11 G	3
Secretary I	1131	9 G	3
Secretary II	1132	10 G	3
Secretary to the Board of Estimate and Apportionment	1137	12 G	3
Secretary to the Board of Public Service	1671	14 M	1
Second Assistant Comptroller	1485	20 M	1
Security Officer	2131	10 G	3
Senior Fire Equipment Dispatcher	2215	72 F	3
Senior Plan Examiner	4234	15 G	1
Senior Plan Examiner/Code Development Specialist	4235	16 G	1
Solid Waste Route Foreman	3127	13 G	3
Soulard Market Manager	3757	15 M	1
Special Assistant for Development	1724	17 M	1
Special Assistant to the Comptroller	1672	16 G	1
Special Assistant to the Mayor	1723	17 G	1
Special Assistant to the Water Commissioner	3538	17 M	1
Special Events Program Executive	1697	18 M	1
Specialist on Aging	6122	14 G	3
Stable Attendant	2577	9 G	3
Stationary Engineer	3423	36 T	3
Street and Traffic Inspection Supervisor	3956	14 M	1
Street and Traffic Inspector	3954	11 G	3
Street and Traffic Liaison	1643	14 M	1
Street Lighting Superintendent	3229	16 M	1
Street Maintenance Superintendent	3132	16 M	1
Sunshine Law Administrator	1626	17 M	1

Title	Code	Grade/Schedule	OVTM
Superintendent of Soldiers' Memorial	3756	14 M	1
Supervising Deputy Marshal	2124	11 G	3
Supervising Stationary Engineer	3428	15 M	2
Supervisor-STD Intervention and Outreach Program	5649	15 M	2
Survey Projects Coordinator	4246	15 G	1
Systems Analyst	1351	15 G	2
Systems Analyst Senior	1353	17 G	1
Systems Development Manager	1366	19 M	1
Systems Development Specialist	1355	17 G	2
Systems Project Leader	1352	18 M	1
Technical Support Specialist	1372	16 G	3
Telecommunications Inspector	1824	13 G	3
Telecommunications Maintenance Supervisor	1854	13 G	3
Telecommunications Specialist	1853	14 G	3
Telecommunications Supervisor	2173	12 G	3
Telecommunications Technician	1855	12 G	3
Telecommunicator	2171	10 G	3
Tow Truck Operator	3311	10 G	3
Towing Services Foreman	3313	11 G	3
Towing Services Supervisor	3314	14 M	2
Trades Helper	3281	31 T	3
Traffic Control Supervisor	3439	14 M	3
Traffic Engineer	4281	15 G	1
Traffic Engineer (Senior)	4282	16 G	1
Traffic Engineering Manager	4284	17 M	1
Transportation Center Operations Specialist	3752	11 G	3
Transportation Center Operations Supervisor	3751	16 M	1
Tree Trimmer	3621	10 G	3
Urban Designer	4185	14 G	3
Urban Forester	3652	14 G	2
Urban Forestry Assistant	3651	11 G	3
Urban Forestry Superintendent	3656	16 M	1
Utility Locator	3119	12 G	3
Utility Worker	3117	9 G	3
Utility Worker (Lead)	3118	10 G	3
Veterinarian	2119	16 G	1
Veterinarian Technician	2118	11 G	3
Video Engineer	1823	40 T	3
Video Production Manager	1812	16 M	1
Video Production Specialist	1822	36 T	3
Video Production Supervisor	1821	40 T	3
Water Distribution Executive	4314	19 M	1
Water Distribution Superintendent	3535	16 M	1
Water Distribution Supervisor	3534	14 M	3
Water Maintenance Foreman	3517	13 G	3
Water Maintenance Technician	3518	12 G	3
Water Meter Worker	3521	10 G	3
Water Meter Worker Supervisor	3522	13 G	3
Water Plant Maintenance Foreman	3543	39 T	3
Water Plant Maintenance Manager	3531	17 M	1
Water Plant Maintenance Mechanic	3541	36 T	3

Title	Code	Grade/Schedule	OVTM
Water Plant Maintenance Mechanic (Lead)	3542	38 T	3
Water Production Engineer	3536	17 M	1
Water Production Executive	4315	19 M	1
Water Services Manager	3537	14 M	1
Water Treatment Plant Operator	3515	36 T	3
Water Treatment Plant Supervisor I	3514	38 T	3
Water Treatment Plant Supervisor II	3519	39 T	3
Web Development Specialist I	1345	14 G	2
Web Development Specialist II	1346	15 G	2
Welder	3235	36 T	3
Workers Compensation Specialist	1543	13 G	3
Zoning Administrator	4165	16 M	1
Zoning Inspector	4163	10 G	3
Zoning Specialist	4162	12 G	3
Zoning Specialist (Lead)	4164	14 G	3

(Ord. No. 71963, § 1, 2-11-2025; Ord. No. 71686, § 1, 6-28-2023; Ord. No. 71512, § 1, 6-16-2022; Ord. No. 71099, § 1, 2-27-2020.)

4.10.020 Official pay schedule for classification grades.

The Civil Service Commission, in accordance with Section 7(b)(1) of Article XVIII of the City Charter, recommended pay schedules for all pay grades denoted in Section 4.10.010(a) of the classification plan prepared and adopted by the Department of Personnel. The official pay schedules and their corresponding salary ranges as hereby adopted in this Section 4.10.020 are as follows: (a) - General and Management Schedule, (b) - Trades Schedule, (c) - Fire Division Schedule, (d) - Police Division Schedule and (e) - Elected Official Schedule.

The official pay schedules hereby adopted have been determined to constitute fair and equitable rates of pay. Due consideration has been given to both the employees and the taxpayers in adopting the official pay schedules. In setting these official pay schedules, the principle of like pay for like work, and suitable differences in pay for differences in work, has been duly observed.

(a) *General and Management Pay Schedule:*

(1) The following bi-weekly pay schedule is for all pay grades denoted with the suffix "G" or "M".

BI-WEEKLY RANGE OF PAY IN WHOLE DOLLARS

Grade Step	5	6	7	8	9	10	11	12	13
1								1388	1531
2								1410	1554
3							1374	1432	1578
4							1396	1453	1602
5							1417	1476	1626
6							1439	1499	1651
7							1461	1521	1677
8							1483	1545	1703
9						1364	1506	1569	1728
10						1384	1529	1592	1755
11						1406	1552	1617	1782
12						1428	1576	1642	1809
13						1449	1600	1667	1836
14					1353	1472	1624	1692	1864
15					1374	1495	1649	1718	1893

Grade Step	5	6	7	8	9	10	11	12	13
16					1396	1517	1675	1745	1922
17					1417	1541	1701	1772	1951
18					1439	1565	1726	1798	1981
19					1461	1588	1753	1826	2011
20				1343	1483	1613	1780	1854	2041
21				1364	1506	1638	1807	1882	2072
22				1384	1529	1662	1834	1911	2104
23				1406	1552	1688	1862	1939	2136
24				1428	1576	1714	1891	1969	2169
25			1333	1449	1600	1740	1920	1999	2202
26			1353	1472	1624	1766	1949	2030	2236
27			1374	1495	1649	1793	1979	2061	2270
28			1396	1517	1675	1821	2009	2093	2305
29			1417	1541	1701	1849	2039	2125	2340
30	1312	1323	1439	1565	1726	1877	2070	2170	2392

Grade Step	14	15	16	17	18	19	20	21	22	23
1	1754	2010	2306	2646	3034	3486	4003	4319	4659	5028
2	1781	2040	2341	2686	3082	3538	4063	4384	4729	5105
3	1809	2071	2377	2727	3128	3592	4125	4450	4800	5182
4	1836	2103	2413	2769	3175	3646	4188	4517	4872	5260
5	1864	2135	2450	2811	3224	3702	4251	4585	4945	5340
6	1893	2168	2487	2853	3272	3757	4315	4654	5020	5420
7	1922	2201	2526	2896	3322	3814	4380	4724	5096	5501
8	1951	2235	2564	2941	3372	3872	4445	4795	5174	5585
9	1981	2269	2603	2985	3424	3930	4512	4867	5252	5669
10	2011	2304	2642	3030	3475	3990	4580	4940	5331	5755
11	2041	2339	2682	3077	3528	4051	4649	5014	5412	5841
12	2072	2375	2723	3123	3581	4112	4719	5090	5493	5930
13	2104	2411	2765	3170	3636	4174	4791	5168	5575	6019
14	2136	2448	2807	3219	3690	4236	4863	5246	5660	6110
15	2169	2485	2849	3267	3746	4300	4936	5325	5745	6202
16	2202	2524	2892	3317	3803	4365	5010	5405	5832	6295
17	2236	2562	2937	3367	3860	4431	5085	5487	5919	6390
18	2270	2601	2981	3419	3919	4498	5162	5569	6009	6487
19	2305	2640	3026	3470	3979	4566	5241	5654	6100	6585
20	2340	2680	3072	3523	4039	4635	5320	5739	6191	6684
21	2376	2721	3119	3576	4099	4705	5400	5826	6285	6785
22	2412	2762	3166	3631	4161	4776	5482	5913	6380	6887
23	2449	2805	3215	3685	4224	4848	5564	6003	6476	6991
24	2486	2847	3263	3741	4288	4921	5649	6093	6573	7096
25	2525	2890	3312	3798	4353	4996	5734	6185	6672	7203
26	2563	2934	3363	3855	4419	5071	5821	6279	6773	7311
27	2602	2979	3413	3914	4486	5147	5908	6374	6875	7421
28	2641	3024	3465	3973	4554	5224	5998	6469	6979	7533
29	2681	3070	3517	4032	4623	5303	6088	6567	7084	7647
30	2742	3149	3611	4148	4762	5469	6282	6782	7320	7904

(b) *Trades Pay Schedule:*

(1) The following bi-weekly pay schedule is for all pay grades denoted with the suffix "T".

BI-WEEKLY RANGE OF PAY IN WHOLE DOLLARS

Grade Step	31	32	33	34	35	36	37	38	39	40
1			1337	1400	1465	1534	1607	1679	1758	1843
2			1358	1421	1487	1557	1632	1705	1785	1870
3		1318	1378	1443	1510	1581	1656	1730	1813	1899
4		1339	1400	1466	1533	1606	1682	1757	1841	1928
5		1360	1421	1488	1556	1630	1708	1784	1868	1958
6	1317	1380	1443	1511	1580	1655	1733	1811	1897	1988
7	1338	1402	1466	1535	1605	1681	1760	1839	1926	2018
8	1359	1423	1488	1558	1629	1707	1787	1866	1956	2049
9	1379	1445	1511	1582	1654	1732	1815	1895	1986	2080
10	1401	1468	1535	1607	1680	1759	1843	1924	2016	2112
11	1422	1490	1558	1632	1706	1786	1870	1954	2047	2143
12	1444	1513	1582	1656	1731	1814	1899	1984	2078	2176
13	1467	1537	1607	1682	1758	1842	1928	2014	2109	2209
14	1489	1560	1632	1708	1785	1869	1958	2045	2141	2243
15	1512	1584	1656	1733	1812	1898	1988	2075	2174	2277
16	1536	1609	1682	1760	1840	1927	2018	2107	2207	2312
17	1559	1634	1708	1787	1867	1957	2049	2139	2241	2347
18	1583	1658	1733	1815	1896	1987	2080	2172	2275	2383
19	1608	1684	1760	1843	1925	2017	2112	2205	2310	2419
20	1633	1710	1787	1870	1955	2048	2143	2239	2345	2457
21	1657	1736	1815	1899	1985	2079	2176	2273	2381	2494
22	1683	1762	1843	1928	2015	2110	2209	2308	2417	2532
23	1709	1789	1870	1958	2046	2142	2243	2343	2454	2570
24	1735	1817	1899	1988	2076	2175	2277	2379	2492	2609
25	1761	1845	1928	2018	2108	2208	2312	2415	2530	2648
26	1788	1873	1958	2049	2140	2242	2347	2452	2568	2688
27	1816	1901	1988	2080	2173	2276	2383	2490	2607	2730
28	1844	1930	2018	2112	2206	2311	2419	2528	2646	2771
29	1872	1960	2049	2143	2240	2346	2457	2566	2686	2813
30	2036	2129	2230	2336	2437	2559	2678	2797	2937	3067

(c) *Fire Division Pay Schedule:* The bi-weekly pay schedule for all pay grades denoted by the suffix "F" will be adopted in accordance with Section 31 of Article XVIII of the City Charter. The Director of Personnel shall establish such regulations and procedures as are necessary to place the Fire Division Pay Schedule in effect. The following bi-weekly pay schedule is for all pay grades denoted with the suffix "F".

FIRE BI-WEEKLY RANGE OF PAY

	Class Codes							
Current Years of Service	**2211 2221 69F**	**2212 2222 69F**	**2215 2226 72F**	**2216 74F**	**2227 77F**	**2231 78F**	**2235 81F**	**2239 83F**
0	2189							
1		2249						
2		2306						
3		2410						
4		2462						
5		2528						
6	2596							
7	2724	3397						

Current Years of Service	Class Codes 2211 2221 69F	2212 2222 69F	2215 2226 72F	2216 74F	2227 77F	2231 78F	2235 81F	2239 83F
8	2816	3516						
9	2911	3638	3952					
10	2920	3647	3960					
11	3001	3723	4041	4368				
12	3011	3731	4050	4376	4478	4683	5452	
13	3020	3740	4059	4385	4612	4816	5469	
14	3028	3748	4067	4394	4620	4826	5487	
15	3037	3758	4076	4403	4629	4834	5504	
16	3045	3766	4084	4412	4637	4843	5521	
17	3054	3775	4094	4420	4647	4851	5539	
18	3062	3784	4106	4429	4656	4860	5557	
19	3071	3792	4111	4438	4664	4869	5574	
20	3079	3801	4120	4447	4673	4878	5592	

(d) *Police Division Pay Schedule:* The following bi-weekly pay schedule is for all pay grades denoted with the suffix "D".

POLICE BI-WEEKLY RANGE OF PAY

Current Years of Service	Class Codes 2513 69D	2514 69D	2522 71D	2524 72D	2526 74D	2532 77D	2534 78D	2536 81D	2538 83D
0	2189								
1		2249							
2		2306							
3		2410							
4		2462							
5		2528	2980						
6		2596	2987						
7		2724	3138	3397					
8		2816	3246	3516					
9		2911	3359	3638	3952				
10	2920	3367	3647	3960					
11	3001	3438	3723	4041	4368				
12	3011	3446	3731	4050	4376	4478	4683	5452	
13	3020	3455	3740	4059	4385	4612	4816	5469	
14	3028	3464	3748	4067	4394	4620	4826	5487	
15	3037	3472	3758	4076	4403	4629	4834	5504	
16	3045	3482	3766	4084	4412	4637	4843	5521	
17	3054	3490	3775	4094	4420	4647	4851	5539	
18	3062	3499	3784	4106	4429	4656	4860	5557	
19	3071	3507	3792	4111	4438	4664	4869	5574	
20	3079	3516	3801	4120	4447	4673	4878	5592	

(e) *Elected Official Pay Schedule:*

(1) The following bi-weekly pay schedule for each Executive pay grade, denoted by the suffix "E," is currently in effect and extends through the term of office for each elected official:

Grade	Bi-Weekly Rate
1E	$3596
2E	$4315
3E	$5070

(2) The following bi-weekly pay schedule for each executive pay grade, denoted by the suffix "E," shall become effective beginning with any term of office starting after the effective date of this chapter:

Grade	Bi-Weekly Rate
1E	$3815
2E	$4714
3E	$5540

(f) *Shift Differential:* Shift differential shall be paid for certain work assignments. The Director of Personnel shall determine the work assignments for which shift differential will be paid. The assignment or removal of an employee from a work assignment having a shift differential shall be determined by the appointing authority and will not constitute a promotion, demotion, advancement or reduction in pay. The shift differential shall be added to the employee's regular bi-weekly rate.

(1) In order for an employee in Sections 4.10.020(a) or 4.10.020(b) to be eligible for shift differential compensation, the employee must work a shift that requires the completion of four (4) hours of work between the hours of 4:00 p.m. and 8:00 a.m. the following morning. Employees whose pay grade is denoted with the suffix "M" are only eligible to receive shift differential if they are regularly scheduled to work at least four (4) hours between 4:00 p.m. and 8:00 a.m. the following morning. Employees shall be entitled to receive shift differential compensation for no more than one (1) shift worked between the hours of 4:00 p.m. and 8:00 a.m. Employees who are assigned to work schedules that require them to rotate among three (3) shifts (day, evening, night) on a bi-monthly or more frequent basis shall be eligible for shift differential compensation for all three (3) shifts worked.

For employees whose pay range is established in Section 4.10.020(a) or 4.10.020(b) the shift differential premium shall be one (1) percent of the employee's base bi-weekly rate for each eligible shift worked in a bi-weekly pay period. An employee whose pay range is established in Section 4.10.020(a) or 4.10.020(b) shall receive shift differential for working a portion of an eligible shift, provided the portion of the shift not worked is charged to paid leave. Shift differential shall only be paid for whole hours worked; a fraction of an hour shall not be counted toward the payment of the differential.

(2) For those employees whose pay range is established in Section 4.10.020(c), the shift differential premium shall be two dollars ($2.00) per hour for each hour worked between 11:00 p.m. and 7:00 a.m. during an eligible shift. Employees must work at least twelve (12) hours of a regularly assigned 24-hour shift to be eligible for any shift differential for the shift. Such employees shall not receive shift differential for overtime worked, which is not part of their regular schedule. This provision will not go into effect until shift differential is agreed upon by the Director of Personnel and the Union (Local 73) in writing.

Except shift differential premium shall be two dollars ($2.00) per hour for each hour worked between 11:00 p.m. and 7:00 a.m. during an eligible shift to be paid to Overtime Code 3 Fire Equipment Dispatcher classifications whose pay range is established in Section 4.10.020(c).

(3) For Police Officer Trainees and employees whose pay grade is denoted with the suffix D, the night shift differential shall be ten (10) percent of the hourly rate for all full hours worked between the hours of 11:00 p.m. and 7:00 a.m. and all eight-hour shifts beginning between 10:30 p.m. and 11:30 p.m.

(4) Except as otherwise provided in this chapter, shift differential shall not be paid to employees compensated on an hourly or per performance basis, or bi-weekly paid employees who work part-time. Neither shall shift differential be paid to full-time regular employees docked for any portion of an eligible shift.

(g) *Weekend Differential:* When employees whose pay range is established in Section 4.10.020(a) or 4.10.020(b) work on a Saturday and/or a Sunday they shall be eligible for weekend differential. Employees whose pay grade is denoted with the suffix "M" are only eligible to receive weekend differential when it is part of their regularly scheduled work hours. This differential shall be one (1) percent of an employee's base bi-weekly rate. An employee shall receive weekend differential for

working any portion of an eligible day. This differential shall only be paid for full hours worked. Weekend differential shall not be paid to employees compensated on an hourly or per performance basis or bi-weekly paid employees who work part-time. Neither will the weekend differential be paid to full-time regular employees docked for any portion of a day on which the differential would otherwise be paid.

(h) *Commuting Allowance:* Employees residing within the corporate limits of the City of St. Louis who are regularly assigned to a position located in a City institution, agency, or facility located outside the corporate limits of the City of St. Louis, and who are regularly assigned to a five-day, forty-hour weekly work schedule, shall be entitled to a commuting allowance in the amount of one hundred eighty dollars ($180.00) bi-weekly on the effective date of this chapter. Eligible full-time employees who are assigned to an alternate form of work schedule which reduces the frequency of commuting to work shall be entitled to a commuting allowance which is reduced in proportion to the reduced frequency of commuting. City employees who are temporarily assigned duty to a facility located outside the corporate limits of the City of St. Louis shall be entitled to a per diem rate for the duration of the assignment. No employee living outside of the corporate limits of the City of St. Louis shall receive a commuting allowance.

A period of absence of ten (10) working days or more shall result in suspension of eligibility for the commuting allowance. Suspension of the commuting allowance shall begin during the pay period in which the tenth day of absence occurs and shall continue for any subsequent full or partial pay periods during the period of absence. Upon return to duty from such absence, an employee shall immediately be eligible to resume receiving commuting allowance, reduced in proportion to the time the employee did not work due to absence.

Employees for whom any form of free transportation (car, truck, bus, etc.) is provided by the City from a place within the corporate limits of the City of St. Louis to the work site and back shall not be entitled to the commuting allowance.

(i) *Board and Commission Stipends:*

Title	**Code**	**Stipend**
Member, Building Energy Improvement Board	1979-00-B	$50 per meeting
Member, Airport Commission	1980-00-B	$53 per meeting, up to 24 meetings a year
Member, Board of Adjustment	1981-00-B	$75 per meeting
Member, Board of Air Pollution Appeals	1982-00-B	$60 per meeting and Variance Review
Member, Board of Equalization	1983-00-B	$150 per day
Member, Board of Engineers	1984-00-B	$45 per meeting, up to 2 meetings a week
Member, Board of Examiners of Plumbers	1985-00-B	$60 per month
Member, Board of Examiners of Fumigators	1986-00-B	$45 per meeting, up to 3 meetings a month
Member, Board of Examiners of Sign Erectors	1987-00-B	$45 per meeting, up to 3 meetings a month
Member, Board of Tax Appeals	1988-00-B	$60 per meeting
Member, Civil Service Commission	1989-00-B	$55 per meeting up to 30 meetings a year
Member, Board of Building Appeals	1990-00-B	$60 per meeting, up to 50 meetings a year
Member, Board of Building Code Review	1991-00-B	$60 per meeting, up to 1 meeting a week
Member, Boiler Rules Committee	1992-00-B	$45 per meeting
Member, Committee of Electrical Examiners	1993-00-B	$45 per meeting, up to 15 meetings a year

Title	Code	Stipend
Member, Committee on Plumbing Review	1994-00-B	$45 per meeting, up to 15 meetings a year
Member, Demolition Contractors' Certification Board	1995-00-B	$45 per meeting, up to 15 meetings a year
Member, Board of Merchants' and Manufacturers' Tax Equalization	1996-00-B	$83 per day in session, up to 60 meetings during regular 12 week session, but not to exceed 105 meetings a year
Member, Board of Examiners of Sprinkler System Contractors	1997-00-B	$83 per meeting, up to 15 meetings a year
Member, Board of Examiners for Mechanical Contractors	1998-00-B	$45 per meeting
Member, Board of Noise Control Appeals	1999-00-B	$53 per meeting

A person occupying a position as a member of a Board, Commission or Committee shall be paid at the per day, per meeting or per month rate established above.

(j) The Director of Personnel may establish per performance rates of pay, hourly rates of pay, or rates of pay for units of work and the conditions for making of any such payments. Such per performance, hourly, or unit-of-work rates may be computed from the bi-weekly scales established in this chapter. Per performance, hourly, or unit-of-work rates shall be established considering the nature of employment, community practices in compensating similar employment, and the purpose of the program for which the rate is established. Employees paid per performance, hourly, or unit-of-work rates of pay shall not be entitled to vacation, medical leave or holiday leave with pay or other benefits accorded employees paid a bi-weekly rate except that an appointing authority, with the prior approval of the Director of Personnel, and when sufficient funds have been appropriated for the fiscal year, may establish a modified level or type of benefit program when the provision of such benefit is needed in order to attract and retain sufficiently qualified employees to work in specific per performance, hourly, or unit-of-work assignments.

Appointing authorities are not permitted to utilize per performance and hourly employees as a method of replacing bi-weekly rate employees who would be entitled to employee benefits.

(k) The Director of Personnel may establish trainee rates of pay. Such trainee rates may be established on an hourly, per performance or bi-weekly basis and shall be less than the rate paid to a regular employee.

(l) The Director of Personnel, with the assistance of appointing authorities concerned, may establish rates and conditions under which compensation may be granted for periods of time during which an employee is away from the job site but restricted in his/her activities because of an assignment by the appointing authority to be available for a call to return to the work site to perform emergency duties. Pay rates and conditions established under the provisions of this Section 4.10.020(l) may include reasonable minimum pay guarantees for employees required to return to the work site to perform emergency duties. The provisions of this Section 4.10.020(l) shall not be construed to restrict the right of an appointing authority to establish call back procedures for employees as an established condition of employment.

(m) The Director of Personnel may authorize payment of special recruitment incentives, travel, moving and related expenses to recruit employees for positions when funds for this purpose are appropriated.

(n) The Director of Personnel may approve the payment of hiring incentives to current employees to recruit qualified personnel for positions that are difficult to fill. Hiring incentives shall be in any amount up to twenty-five (25) percent of the annual salary of the position for which the recruitment is made.

(o) (1) An appointing authority, with the prior approval of the Director of Personnel, may establish cash awards or other incentives for an employee or group of employees to recognize and reward increased productivity or effectiveness. The incentives offered may include cash, paid time off and such other reasonable incentives as the Director of Personnel may determine. Cash awards shall be made from the personal services

appropriation of the unit, the account from which the employee's salary is paid or from a general appropriation for this purpose.

(2) The Director of Personnel, upon the request of the appropriate appointing authority, may establish a program of cash awards or other incentives, not to exceed ten (10) percent of annual salary, paid as an addition to pay, for the purpose of providing additional compensation for employees who are fluent in a foreign language and who use this skill in the necessary and regular recurring performance of the duties of their position. Cash awards shall be made from the personal services appropriation of the unit, the account from which the employee's salary is paid or from a general appropriation for this purpose. Cash awards and incentives under this program shall be made in accordance with guidelines established by the Director of Personnel.

(3) Notwithstanding any other provision in this chapter, the Director of Personnel is authorized to extend the maximum of the pay ranges by up to forty (40) percent for the purpose of compensating positions which are extremely hard to fill.

(4) The Director of Personnel may provide an employee suggestion program which grants cash and other awards to recognize employee suggestions which improve City services, operations or facilities. Cash awards to employees for suggestions resulting in tangible savings to the City shall not exceed ten (10) percent of the annual tangible net savings. Cash awards and payments for other awards shall be made from an appropriation for a suggestion program or other appropriate account. Additionally, cash awards for suggestions shall be granted as an addition to pay, which does not change an employee's bi-weekly rate. The employee suggestion program shall be administered in accordance with regulations established by the Director of Personnel. The Director of Personnel may establish an authority to evaluate suggestions and determine awards; the decisions of this authority shall be final.

(p) An employee who is appointed to a position requiring advanced technical skills or professional qualifications may be paid at a higher rate than prescribed for the class in Section 4.10.020 of this chapter on recommendation of the appointing authority with the prior approval of the Director of Personnel. Such advancement shall be made solely on the basis that the employee possesses exceptional academic qualifications, registrations or certifications related to the duties of the position and when such academic qualifications, registrations, or certifications are not deemed necessary qualifications for the class of position.

The Director of Personnel may also establish other incentive or reimbursement programs to encourage current employees to attain registration, licensure, certification, or proof of professional mastery when it is deemed to be in the best interest of the Classified Service, or when such credentials are clearly recognized as adding to the capability of individuals in that area. Incentives or reimbursements awarded under such programs do not result in an employee being ruled ineligible for incentives or salary increases permitted under other sections of this chapter.

(q) In skilled trades classes, defined as those that have bona fide apprenticeship programs registered with the Department of Labor or documented attainment of equivalent apprenticeship programs, employees who have completed such apprenticeship programs and attained journeyman status shall be granted the special skills recruitment rate for the class if a special skills recruitment rate exists for the class. Employees in classes in the Trades Pay Schedule who have completed alternative training programs established and approved by the Director of Personnel, and attained journeyman status shall also be eligible for a salary at the special skills recruitment rate if such a rate exists for the class.

(r) An appointing authority may, with the prior approval of the Director of Personnel, establish a program to reimburse, in whole or in part, expenses incurred by employees for the purchase of uniform apparel required in the performance of the duties of their positions, when funds have been budgeted, therefore.

An appointing authority may exercise the option to furnish such uniform as may be required in the employee's performance of his/her duties.

The Director of Personnel may establish regulations relating to employees' eligibility for reimbursement for uniforms.

Further, when funds have been budgeted therefore, an appointing authority may authorize reimbursement to uniformed security or correctional employees of up to fifty dollars ($50.00) per incident for damage to personal property sustained while the employee was directly engaged in quelling a disturbance while performing assigned and/or authorized duties during a shift. Employees whose pay is established under Section

4.10.020(d) of the ordinance may be reimbursed for damages to personal property sustained while in the course and scope of employment in accordance with Police Division policies.

(s) An appointing authority that requires employees to provide and maintain their own tools shall provide a tool replacement program and/or annual maintenance allowance, with the prior approval of the Director of Personnel.

(t) (1) Contingency assignment differential may be paid for certain assignments when immediate position coverage is needed for any unexpected reason (e.g. death, forced leave, emergency illness, etc.) in a higher pay grade, and shall be granted at the onset of the assignment, not to extend more than one (1) pay period. The Director of Personnel will determine the assignments for which contingency assignment differential will be paid. The assignment of an employee to said assignment having a contingency assignment differential will be determined by the appointing authority from an existing eligible list and will not constitute a promotion or advancement in pay. In addition, the removal of an employee from said assignment shall not constitute a demotion or reduction in pay. If an eligible list is not available, an appointing authority may submit to the Director of Personnel the name of the employee being considered for the assignment to determine if they meet the necessary minimum qualifications for the position being considered.

For an employee whose pay range is established in Section 4.10.020(a), 4.10.020(b), 4.10.020(c) or 4.10.020(d), with the prior approval of the Director of Personnel, the contingency assignment differential will be ten (10) percent of the employee's regular base bi-weekly rate added as an addition to pay for each bi-weekly period worked or one (1) percent of the employee's regular base bi-weekly rate for each shift assignment covered, not to exceed one (1) pay period.

(2) Temporary assignment differential will be paid for certain assignments when a vacancy exists for any reason (e.g. separations, terminal vacation, leave of absence, military leave, etc.) in a position with a higher pay grade, and shall be granted for at least one (1) pay period but not more than thirteen (13) pay periods, and offset by any days that the employee by reason of absence is not fulfilling the assignment. The Director of Personnel will determine the assignments for which the temporary assignment differential will be paid. The assignment or removal of an employee from said assignment having a temporary assignment differential will be determined by the appointing authority and will not constitute a promotion, demotion, advancement, or reduction in pay. The intended employee must meet the minimum qualifications for the position to be assigned. The temporary assignment differential shall be computed as an addition to pay and not affect the employee's regular bi-weekly rate.

For an employee whose pay range is established in Section 4.10.020(a), 4.10.020(b), 4.10.020(c) or 4.10.020(d), with the prior approval of the Director of Personnel, the temporary assignment differential will be ten (10) percent of the employee's regular base bi-weekly rate added as an addition to pay for each bi-weekly period worked, not to exceed thirteen (13) pay periods. The Director of Personnel may require the establishment of a department policy on temporary assignment differential pay and must sign off on the policy prior to authorizing temporary assignment differential.

(u) City employees who are required by their appointing authority to routinely use their personal vehicle in the performance of their duties shall be compensated by receiving a vehicle maintenance and use allowance of two hundred ninety-seven dollars ($297.00) per month. Eligible employees who use their personal vehicle with reduced frequency shall be entitled to a vehicle maintenance and use allowance which is reduced in proportion to the reduced frequency of use, subject to the approval of the Director of Personnel.

(v) An appointing authority may, with the prior approval of the Director of Personnel, establish a program to reimburse, in whole or in part, parking expenses incurred by employees, when funds have been budgeted, therefore.

(Ord. No. 71963, § 2, 2-11-2025; Ord. No. 71766, §§ 1, 2, 12-18-2023; Ord. No. 71686, § 2, 6-28-2023; Ord. No. 71512, § 2, 6-16-2022; Ord. No. 71099, § 2, 2-27-2020.)

4.10.030 Education reimbursement.

An appointing authority may, with the prior approval of the Director of Personnel, authorize salary payments, payments of tuition expenses, fees, books and related material in whole or in part to employees to permit them to attend school, visit other governmental agencies or in any approved manner to devote themselves to improvement of knowledge or skills required in the performance of the duties of their position.

The Department of Personnel may reimburse, in whole or in part, expenses incurred by employees in the pursuit of improvement of the knowledge and skills required in the performance of their positions or in higher positions, when funds have been allocated in the Department's budget.

An appointing authority, with the approval of the Director of Personnel, may establish a program to reimburse, in whole or in part, expenses incurred by employees in the pursuit of improvement of the knowledge and skills required in the performance of the duties of their positions or to improve their professional, technical or managerial knowledge or skill.
(Ord. No. 71963, § 3, 2-11-2025; Ord. No. 71686, § 3, 6-28-2023; Ord. No. 71512, § 3, 6-16-2022; Ord. No. 71099, § 3, 2-27-2020.)

4.10.040 Salary range limitations.

No employee in the Classified Service shall be paid at a rate lower than the minimum or higher than the maximum of the salary range established for the class to which his/her position has been allocated, except as otherwise provided in this chapter.
(Ord. No. 71963, § 4, 2-11-2025; Ord. No. 71686, § 4, 6-28-2023; Ord. No. 71512, § 4, 6-16-2022; Ord. No. 71099, § 4, 2-27-2020.)

4.10.050 Starting salary.

(a) The rate of pay for an excepted position to be paid upon original appointment to the class shall be determined by the appointing authority for the excepted position.

(b) Except as otherwise provided in this chapter, the minimum rate of pay for a position shall be paid upon original appointment to the class unless the Director of Personnel finds that it is difficult to secure the services of persons with minimum qualifications or experienced qualified persons at the minimum rate.
The Director may establish a recruitment rate for a single position or all positions in a class and authorize employment at an amount above the minimum but within the regular range of salary established for the class. When a recruitment rate is established for an entire class, employees already in such class may have their salaries adjusted to appropriate rates in the new range resulting from the establishment of the recruitment rate.

(c) Employees with permanent status who are eligible for reemployment as determined by the rules of the Department of Personnel shall be reemployed at an appropriate rate within the salary range which takes into consideration the employee's prior service in the position, as determined by the Director of Personnel.
(Ord. No. 71963, § 5, 2-11-2025; Ord. No. 71686, § 5, 6-28-2023; Ord. No. 71512, § 5, 6-16-2022; Ord. No. 71099, § 5, 2-27-2020.)

4.10.060 Promotion, demotion, reallocation, transfer and temporary promotion.

An employee who is transferred, promoted, demoted, or whose position is reallocated after the effective date of this chapter, shall have his/her rate of pay for the new position determined as follows:

(a) *Promotion:* This shall be defined as a change of an employee in the Classified Service from a position of one class to a position of another class with a higher pay grade or a higher starting minimum salary.

(1) When an employee is promoted to a position in the general, management or trades pay schedule, the employee's current bi-weekly rate of pay shall be set at a rate which is five (5) percent higher than the rate received immediately prior to the promotion or adjusted to the nearest step in the new pay matrix which is not less than but is closest to a rate which is five (5) percent higher than the rate received immediately prior to promotion. An appointing authority, with the prior approval of the Director of Personnel, may increase the pay of an employee up to twenty (20) percent, adjusted to the nearest step, when such action is needed to attract experienced, qualified candidates for a position. Such salary determinations shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(2) Temporary promotion: When an employee, whose salary range is established in Section 4.10.020(a) or 4.10.020(b), is certified and temporarily promoted to a vacant position, for a limited duration, the employee's current salary shall be adjusted as provided in paragraph (a)(1) of this section. Upon expiration of the temporary promotion, the employee shall be returned to his/her former rate of pay, adjusted by any increases the employee would have received in the absence of the temporary promotion. In no case shall the employee's salary be above the maximum of the salary range, unless otherwise provided for in this chapter.
Employees whose salary ranges are established in Section 4.10.020(c) or 4.10.020(d) of this chapter, upon

receipt of a temporary promotion, shall be granted the new rank with a salary adjustment based on appropriate years of service in accordance with procedures established for a regular promotion. At the end of the temporary promotion, the employee shall be returned to the rank held immediately prior to the temporary promotion. The employee's rate of pay shall be based on the appropriate years of service.

(b) *Demotion:* This shall be defined as a change of an employee in the Classified Service from a position of one class to a position of another class which has a lower pay grade and a lower starting minimum salary.

(1) If an employee is demoted for disciplinary reasons in accordance with the rules of the Department of Personnel and Civil Service Commission and established disciplinary procedures, his/her rate of pay shall be established at a rate within the range for the new position which is at least five (5) percent lower than the rate received immediately prior to the demotion or reduced to the nearest step which is at least five (5) percent lower than the rate received immediately prior to the demotion, except no employee shall be reduced below the minimum of the range unless otherwise provided for in this chapter. The amount of the reduction shall be determined by the appointing authority, with the approval of the Director of Personnel.

(2) If an employee accepts a voluntary demotion, his/her current rate of pay shall be reduced within the range for the new position which is five (5) percent lower, to the closest downward step, than the rate received immediately prior to demotion, except that employees who are in a working test period and demote to their previous class of position or pay grade, will return to the rate or step received immediately prior to the promotion, plus any adjustments as otherwise provided in this chapter. No employee shall be paid less than the minimum nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(3) When an employee is demoted for reasons in the best interest of the City Service as determined by the Director of Personnel, his/her salary may be reduced by reason of the new salary range and grade with the prior approval of the Director of Personnel. If the salary of such employee is above the maximum for the new position, the employee's salary shall not be increased so long as he/she remains in the position, except as otherwise provided by this chapter.

(c) *Reallocation:*

(1) If the employee's position is reallocated to a class in a lower pay grade, his/her salary shall remain unchanged or adjusted to the closest step provided the employee's rate of pay shall not be reduced.

(2) The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of Section 4.10.060(a)(1) relating to salary advancement on promotion.

(d) *Transfer:* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, shall remain unchanged, provided that no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(e) *Over Maximum:* The salary of an employee, which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his/her position has been allocated or may be reallocated, shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he/she remains in the class of position, except as otherwise provided by this chapter. (Ord. No. 71963, § 6, 2-11-2025; Ord. No. 71686, § 6, 6-28-2023; Ord. No. 71512, § 6, 6-16-2022; Ord. No. 71099, § 6, 2-27-2020.)

4.10.070 Salary adjustment.

Salary adjustments for all employees in competitive positions shall be based on considerations of merit, equity, or success in fulfilling predetermined goals and objectives as herein provided.

(a) Competitive positions for which salary is established in Section 4.10.020(a), General and Management Schedule; or Section 4.10.020(b), Trades Schedule:

(1) Any employee whose salary is established in Section 4.10.020(a) or Section 4.10.020(b), General, Management, and Trades Pay Schedules, shall receive a service rating in accordance with the Service Rating Manual. The rating together with the standards of performance established in the rating manual shall determine eligibility for a one step within-range (merit) increase at intervals as outlined in the Service Rating Manual or other pay regulation(s) as determined by the Director of Personnel. Notwithstanding any other sec-

tion of the compensation ordinance, all employees in the general, management, and trades pay schedules who would be eligible to receive an annual step increase as a result of a "successful" or "highly successful" overall rating on their regular service rating date will receive a one and five-tenths (1.5) percent increase regardless of their current rate or place in the pay schedule.

(2) A non-exempt (Overtime Code 3 or 4) employee whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter who receives an overall rating of "unsuccessful" as defined by the Service Rating Manual, may have his/her salary reduced as determined by the standards established in the Service Rating Manual, but not less than the minimum of the pay grade range.

(b) As used in this chapter, "anniversary date" means the date following fifty-two (52) weeks of continuous service from the date of original appointment or from the date of the last salary adjustment, if other than a temporary reduction in pay for disciplinary reasons, a demotion (not for disciplinary reasons) or an across-the-board ordinance increase, an increase resulting from an authorized incentive program, reallocation or an upgrade of the classification concurrent with adoption of the ordinance. Absence from service as a result of any authorized paid leave, suspensions, military leave, or family/medical leave will not interrupt continuous service. Absence from service for any other cause shall result in breaking continuity of service and establishment of a new anniversary date, except as otherwise provided in this chapter. The Director of Personnel may authorize different anniversary dates for an employee or groups of employees.

(c) An appointing authority may evaluate the performance of an employee whose salary is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter for the purpose of a salary adjustment only at intervals as described above except in the case of:

(1) Exceptional performance of duties: With the prior approval of the Director of Personnel, the appointing authority in accordance with the Service Rating Manual, may advance the salary of an employee who demonstrates exceptional performance of duties after serving twenty-six (26) weeks of employment at the same rate in the salary range by not more than ten (10) percent or to the closest step in the pay range which provides not more than a ten (10) percent increase; this may be in addition to any merit increase received.

(2) Substandard performance of duties: An appointing authority may reduce the salary of an employee whose level of performance is significantly diminished and no longer warrants payment at the current rate within the range as provided in the Service Rating Manual; providing the employee's salary is above the minimum of the range, established in Section 4.10.020(a) or Section 4.10.020(b) and allocated to Overtime Code 3 or Overtime Code 4.

The granting of any such increase or decrease in salary shall be made at the beginning of a payroll period, as determined by the Director of Personnel, following approval of such salary action.

(d) Competitive positions for which salary is established in Section 4.10.020(c), fire division schedule: All employees in the fire division pay schedule shall have a service rating completed in accordance with the Service Rating Manual.

Probationary fire privates shall be advanced to the rate for fire privates at the beginning of the first bi-weekly pay period following one (1) year of service. Probationary fire equipment dispatchers shall follow the same schedule.

(e) Competitive positions for which salary is established in Section 4.10.020(d), police division schedule: All employees in the police division pay schedule shall have a service rating completed in accordance with the Service Rating Manual.

Police probationary officers who successfully complete their working test period shall be advanced to the rate for police officer at the beginning of the first bi-weekly pay period during which such officer's one (1) year anniversary as a police probationary officer occurs, excluding his/her initial time in training at the Police academy.

(f) Excepted positions: The pay of an employee in an excepted position shall be adjusted to any rate within the pay range at the discretion of the appointing authority for the excepted position.

(g) The Director of Personnel may approve, at the request of an appointing authority, adjustments to correct or mitigate serious and demonstrable internal pay inequities. Salary adjustments under this provision shall preclude adjustments to compensate or reward employees for long-term or meritorious service.

(h) The pay of any employee may be decreased as a disciplinary action by an appointing authority to a

lower rate. Any such decrease shall be made in accordance with the established disciplinary procedures. The decrease shall not be greater than fifteen (15) percent of the current salary rate. The decrease may be below the minimum of the pay range for the class. The appointing authority may determine the pay decrease shall be effective for a specific number of bi-weekly pay periods provided, however, that such decrease shall not be effective for more than thirteen (13) bi-weekly pay periods.

(i) An employee who is temporarily promoted shall be eligible for within range salary adjustments under provisions of this Section 4.10.070.

(j) The Director of Personnel may approve a within range salary adjustment or other incentives to retain employees in positions that are difficult to fill, or because of their unique requirements. Said adjustment may only be granted once during a twenty-six-week period.

(Ord. No. 71963, § 7, 2-11-2025; Ord. No. 71686, § 7, 6-28-2023; Ord. No. 71512, § 7, 6-16-2022; Ord. No. 71099, § 7, 2-27-2020.)

4.10.080 Income sources.

Any salary paid to an employee in the Classified Service shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments specifically authorized by ordinance or pay regulation promulgated by the Director of Personnel. No employee shall receive remuneration from the City in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which the employee may undertake or volunteer to perform.

Whenever an employee not on an approved paid leave works for a period less than the regularly established number of hours a day, days a week or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's normal work week and the bi-weekly rate for the employee's position. The payment of a separate salary for actual hours worked from two (2) or more departments, divisions or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.

(Ord. No. 71963, § 8, 2-11-2025; Ord. No. 71686, § 8, 6-28-2023; Ord. No. 71512, § 8, 6-16-2022; Ord. No. 71099, § 8, 2-27-2020.)

4.10.090 Conversion.

(a) Pay schedules in Section 4.10.020(a) or Section 4.10.020(b) in Ordinance Number 71686 shall continue in effect until the beginning of the first bi-weekly pay period starting after the effective date of this chapter, and the rates to be paid to employees in positions of any classes for which a rate is established or changed in Section 4.10.020(a) or Section 4.10.020(b) of this chapter shall become effective and be adjusted (if necessary) as follows:

The salary of each employee whose pay range is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter whose class has been allocated to a higher pay grade in the appropriate pay schedule as determined by the Director of Personnel shall have their current salary increased to a rate, rounded to the nearest whole dollar, which is not less than but is closest to a rate which is five (5) percent higher than the rate received immediately prior to promotion, but not less than the minimum of the pay range, whichever is the greater. If an employee's salary is between steps, the employee's salary shall be placed at the higher step.

(b) Pay schedules in Section 4.10.020(c) or Section 4.10.020(d) in Ordinance Number 71686 shall continue in effect until the beginning of the first bi-weekly pay period starting after the effective date of this chapter.

The salary of each employee whose pay is established in Section 4.10.020(c) or Section 4.10.020(d) of this chapter who previously occupied a step in the pay range within Ordinance Number 71686 that was greater than step 20, shall be moved to step 20 in the appropriate pay range at the beginning of the first bi-weekly pay period starting after the effective date of this chapter.

(c) No employee shall be reduced in salary by reason of the adoption of the new pay schedules in this chapter.

(d) The salary of an employee serving in a trainee position, which remains above the new trainee rate for his/her position, shall remain unchanged.

(e) The Director of Personnel may establish a special conversion procedure for a class or position in the event that the Director determines that a serious inequity would be created by the application of the conversion procedures established in this Section 4.10.090.

(f) All full-time employees whose salary is established in Section 4.10.020(a) or Section 4.10.020(b),

General and Management or Trades Pay Schedules whose bi-weekly rate is above step 30 shall have their bi-weekly rate increased by three (3) percent at the beginning of the first bi-weekly pay period starting after the effective date of this chapter.

(g) The Director of Personnel shall establish such procedures as needed to place this chapter into effect and interpret its provisions.

(Ord. No. 71963, § 9, 2-11-2025; Ord. No. 71686, § 9, 6-28-2023; Ord. No. 71512, § 9, 6-16-2022; Ord. No. 71099, § 9, 2-27-2020.)

4.10.100 Payment of salaries.

All compensation for positions in the Classified Service shall be paid bi-weekly. The Director of Personnel and Comptroller shall establish the procedure for listing employees on the various payrolls. The payment due each employee for service, except as otherwise provided, shall be made not later than sixteen (16) days after the end of the bi-weekly pay period. In the event that an employee is dismissed or has been employed for occasional or emergency work, the Comptroller may immediately pay the employee upon termination of service without waiting for the regular bi-weekly pay date of the department, division, section, office, agency, board or commission where the employee worked.

(Ord. No. 71963, § 10, 2-11-2025; Ord. No. 71686, § 10, 6-28-2023; Ord. No. 71512, § 10, 6-16-2022; Ord. No. 71099, § 10, 2-27-2020.)

4.10.110 Changes to classification plan.

Whenever the Department of Personnel finds it necessary to add a new class to the classification plan, the Director of Personnel shall allocate the class to an appropriate grade and schedule in this chapter, recommend such change to the Civil Service Commission, and notify the Board of Aldermen of this action.

Whenever the Department of Personnel finds it necessary to change the overtime code of an existing class within the classification plan, the Director of Personnel shall change the overtime code, recommend such change to the Civil Service Commission, and notify the Board of Aldermen of this action.

Whenever the Department of Personnel finds it necessary to change the pay schedule of an existing class within the classification plan, the Director of Personnel shall allocate the class to the appropriate schedule in this chapter, recommend such change to the Civil Service Commission, and notify the Board of Aldermen of this action.

The pay grade allocated to a class of position within the classification plan shall remain unchanged for the duration of the existing compensation ordinance. Whenever the Department of Personnel considers it necessary to change the pay grade of an established class of position, such adjustment can only be made concurrent with the adoption of a new compensation ordinance. Recommendation for the allocation of a new pay grade shall be made by the Director of Personnel to the Civil Service Commission for final approval by the Board of Aldermen.

(Ord. No. 71963, § 11, 2-11-2025; Ord. No. 71686, § 11, 6-28-2023; Ord. No. 71512, § 11, 6-16-2022; Ord. No. 71099, § 11, 2-27-2020.)

4.10.120 Payroll forms.

The Director of Personnel shall prescribe forms on which appointing authorities shall certify to the fact that a vacancy exists in a lawfully created position and to the lawful appointment of a person to fill the position. The Director of Personnel shall indicate on these forms the proper allocation of the position and the rate at which payment is to be made. When approved by the Director of Personnel and submitted to the Comptroller, these forms shall constitute authorization for the initial placing of a person's name on the payroll. The Comptroller shall not authorize any change in the rate of pay of an individual on the payroll unless approved by the Department of Personnel. The Comptroller shall provide the Department of Personnel with a copy of each payroll audited and found correct within twenty-one (21) days after audit and approval of the payroll by the Comptroller's Office.

(Ord. No. 71963, § 12, 2-11-2025; Ord. No. 71686, § 12, 6-28-2023; Ord. No. 71512, § 12, 6-16-2022; Ord. No. 71099, § 12, 2-27-2020.)

4.10.130 Certification of payroll.

The appointing authority shall certify on each payroll or a subsidiary document that each person whose name appears on the payroll has been lawfully appointed at a salary provided by this chapter and that the employee has actually worked the time for which he/she will be paid, subject to the provisions of this chapter governing hours of work and leaves of absence in the Classified Service.

(Ord. No. 71963, § 13, 2-11-2025; Ord. No. 71686, § 13, 6-28-2023; Ord. No. 71512, § 13, 6-16-2022; Ord. No. 71099, § 13, 2-27-2020.)

4.10.140 Minimum work hours.

Each appointing authority shall establish procedures to assure that the employees under his/her supervision are actively engaged in the performance of the duties of their positions in accordance with the provisions of this section.

Each appointing authority shall submit to the Department of Personnel the work schedule established for each position in the work unit. Work schedule reports shall be submitted upon request of the Director of Personnel or whenever the appointing authority proposes to change the permanent work schedule of a position. The work schedule submitted by the appointing authority shall constitute the normal work schedule for the position when approved by the Director of Personnel.

All employees in the Classified Service shall be in attendance at their work in accordance with schedules established under the provisions of this Section 14, subject to other provisions of this chapter with respect to hours, holidays, vacation leave, medical leave, furloughs, sick leave, military leave, and leaves of absence with or without pay.

(a) Employees whose salaries are established in Section 4.10.020(a) or Section 4.10.020(b): Forty (40) hours shall constitute the average minimum required weekly hours of service in an employment cycle under regular full-time employment for all City employees paid on a bi-weekly basis occupying competitive positions in the Classified Service. The minimum daily and annual service required of such employees shall be in proportion to the average minimum weekly hours established.

Appointing authorities shall so arrange the time for reporting for work, for luncheon intermission, and for quitting work of the various employees under their jurisdiction so that the employees will actually be engaged in active performance of their duties for not less than the average minimum number of hours required.

(b) Management Employees: Appointing authorities for employees occupying full-time positions whose salaries are established in Section 4.10.020(a) of this chapter shall initiate procedures to see that such employees are engaged in the performance of their duties on a full-time basis. Full-time employment for any employee whose classification is denoted in the Management Schedule shall be defined as an average of forty (40) hours per week of time devoted to the duties of the position on an annual basis.

(c) Uniformed Fire Personnel: Fifty-two (52) hours shall constitute the average required weekly hours of service in an employment cycle under regular full-time employment for all employees in the Division of Fire and Fire Prevention, except that the appointing authority, with the approval of the Director of Personnel, may determine that the minimum work hours provision of Section 4.10.140(a) shall apply to employees in certain positions due to the nature of the assignment and/or scheduling requirements. The appointing authority shall so arrange the time for reporting for work and for quitting work of the various employees under the appointing authority's jurisdiction so that the employees will actually be engaged in the active performance of their duties for not less than the average number of hours required.

(d) The work period for employees whose pay is established in Section 4.10.020(d) of this chapter is twenty-eight (28) days. The daily work period for an employee in the position of police probationary officer and police officer is eight (8) hours which includes a thirty-minute meal period. The meal period is counted as working time; however, an officer unable to take a meal break will not receive additional compensation. The daily work period for an employee in the position of police officer trainee is eight (8) hours. Additionally, police officer trainees shall receive a thirty-minute unpaid meal period that shall not be counted as part of their daily work period or work day.

(Ord. No. 71963, § 14, 2-11-2025; Ord. No. 71686, § 14, 6-28-2023; Ord. No. 71512, § 14, 6-16-2022; Ord. No. 71099, § 14, 2-27-2020.)

4.10.150 Overtime.

(a) The Department of Personnel shall determine those positions in the Classified Service of the City of St. Louis which are exempt from overtime compensation and those positions which are not exempt from overtime compensation. The overtime codes established for each class in Section 4.10.010(a) of this chapter shall be interpreted as follows:

OVERTIME CODE (OVTM):

1. These classes are primarily managerial in nature, but may also include some professional or administrative classes that are ineligible for overtime pay under all but emergency conditions as described in Section 15(d) of this chapter.
2. These are supervisory, professional, and admin-

istrative classes that are exempt from overtime compensation, but which the City compensates for overtime at the straight (1.0×) time rate.

3. These are non-exempt classes that receive overtime compensation at the one and one-half (1.5×) time rate.
4. These non-exempt classes work an average bi-weekly work schedule of eighty-four (84) hours and, therefore, receive overtime compensation at the one and one-half (1.5×) time rate.

Appointing authorities are prohibited from changing employee work schedules to avoid the payment of overtime.

For purposes of determining overtime pay rates for non-exempt employees, the regular hourly rate of pay shall be used.

Any employee in a class which has been allocated to Overtime Code 4 (non-exempt) in Section 4.10.010(a) of this chapter shall be compensated for overtime by granting the employee pay or compensatory time off at the one and one-half (1.5×) time rate. Each appointing authority shall designate and submit to the Director of Personnel the official work week or work cycle for all non-exempt (Code 4) positions in the work unit. Whenever a non-exempt (Code 4) employee works in excess of forty (40) hours in a work week, the employee will be paid at the one and one-half time (1.5×) rate. The average number of scheduled hours in a bi-weekly pay period shall not be less than eighty-four (84) for full-time employment. The regular hourly rate of pay for a non-exempt (Code 4) bi-weekly paid employee shall be determined by dividing the employee's regular bi-weekly rate of pay by the average number of regularly scheduled hours of work in a bi-weekly pay period. In addition to the actual hours worked, only paid vacation, compensatory time, jury leave, and holidays shall count as hours worked for the purpose of determining eligibility for overtime compensation.

Any employee in a class which has been allocated to Overtime Code 3 (non-exempt) in this chapter shall be compensated for overtime work in accordance with the provisions of this section. Each appointing authority shall designate and submit to the Director of Personnel the official work week and schedule or work cycle for all non-exempt positions in the work unit. The average number of scheduled hours in a bi-weekly pay period shall not be less than eighty (80) for full-time employment.

Whenever an Overtime Code 3 employee whose pay matrix is in Section 4.10.020(a) or Section 4.10.020(b), works hours in excess of the maximum established for an official work week or work cycle, usually forty (40) hours in a work week such hours shall be paid at the one and-one-half time (1.5×) rate. In addition to the actual hours worked, only paid vacation, compensatory time, jury leave, and holidays shall count as hours worked for the purpose of determining eligibility for overtime compensation.

Overtime Code 3 employees whose pay matrix is in Section 4.10.020(c) of this chapter who are working a nineteen-day work cycle are eligible to receive overtime after one hundred forty-four (144) hours are worked in a work cycle, except that the Fire Division shall pay overtime for emergency work at the end of a shift or emergency work required on a separate, non-scheduled day, even if the total number of hours worked in the work cycle is not in excess of one hundred forty-four (144) hours. These employees shall not receive additional compensation for regularly scheduled hours in excess of one hundred forty-four (144) hours if they do not actually work more than one hundred forty-four (144) hours in the work cycle; provided however, that in addition to the actual hours worked, jury leave, vacation leave, compensatory time and "O" days shall count as hours worked for the purpose of determining eligibility for overtime compensation. Days scheduled off to reduce average work week to fifty-two (52) hours, compensatory time, vacation, "O" days, and holiday time shall be scheduled consistent with a reasonable vacation and holiday leave policy to avoid the necessity of actually working more than one hundred forty-four (144) hours during any work cycle.

Police officer trainees, police probationary officers and police officers shall be paid overtime, defined as one and one-half time (1.5×) the employee's regular standard rate of pay, for all hours worked in excess of their eight-hour work day or any hours worked on a scheduled day off. Only hours actually worked shall count toward overtime pay.

Police Sergeants, whose salary is established in Section 4.10.020(d) of this chapter, shall be paid overtime, as defined as one and one-half time (1.5×) the employee's regular standard rate of pay, for all hours actually worked in excess of one hundred sixty (160) hours in a twenty-eight-day work period. In addition to hours physically worked, paid vacation, compensatory time, holidays, discretionary holidays, and sick-injured time

shall count toward the one hundred sixty-hour threshold during the twenty-eight-day period that must be met to earn overtime. These employees shall receive additional compensation for authorized overtime, court time, and court standby time whenever the total accumulated time exceeds forty (40) hours.

(b) Any employee in a class which has been allocated to Overtime Code 2 in Section 4.10.010(a) of this chapter shall be compensated for overtime by granting the employee pay or compensatory time off at the straight (1.0×) time rate. Each appointing authority shall designate and submit to the Director of Personnel the official work week or work cycle, which is usually forty (40) hours, for all exempt (Code 2) positions in the work unit. Whenever a full-time employee in an exempt (Code 2) position is directed by management, with the approval of the appointing authority, to work hours in excess of the maximum established for an official work week or work cycle it shall be considered overtime. In addition to the actual hours worked, only paid vacation time, compensatory time, jury leave, and holidays shall count as hours worked for the purpose of determining eligibility for overtime compensation.

Straight time (1.0×) overtime shall be compensated at the employee's regular hourly rate of pay, or by granting the eligible employee compensatory time off at the rate of one (1) hour for each hour of overtime worked. The average number of scheduled hours in a bi-weekly pay period shall not be less than eighty (80) for full-time employment. The regular hourly rate of pay for an exempt (Code 2) bi-weekly paid employee shall be determined by dividing the employee's regular bi-weekly rate of pay by the average number of regularly scheduled hours of work in a bi-weekly pay period.

(c) Part-time bi-weekly paid employees and employees paid on an hourly or per performance basis shall be compensated for overtime work in accordance with the overtime provisions of this section and with consideration for community practices in compensating similar employment.

(d) An appointing authority may compensate Overtime Code 1 employees at the straight-time (1.0×) rate, when both of the following conditions exist: 1) the Mayor of the City of St. Louis declares an emergency due to serious and protracted conditions which threaten continuous City Service, preservation of public peace, health, or safety, and 2) the appointing authority directs an employee or group of employees to work in excess of forty (40) hours per week. The appointing authority shall maintain attendance records of the assignment(s) and submit such records at the request of the Director of Personnel.

(e) Employees who wish to use compensatory time earned in lieu of pay must make their request in writing at least twenty-four (24) hours in advance of the day or days requested. The appointing authority shall keep in mind the staffing needs of the department when granting time off, but in any case time off will not be unreasonably denied.

Pay shall be the regular method of compensation for recorded overtime hours of work for employees in classes with Overtime Code 3 and Overtime Code 4. However, an appointing authority shall compensate a non-exempt bi-weekly paid employee for overtime work by granting the employee compensatory time off in lieu of pay only if the employee requests compensatory time, in writing.

Employees engaged in public safety, emergency response or seasonal activity as defined by the Director of Personnel may have a maximum balance of two hundred forty (240) hours of compensatory time; except that Police Officer Trainees, Police Probationary Officers, Police Officers, and Police Sergeants shall only be allowed to accumulate up to forty (40) hours of compensatory time. All other employees are allowed a maximum balance of one hundred twenty (120) hours of compensatory time excluding compensatory time earned for working on a holiday. These maximum balances of compensatory time shall apply to employees working an average work week of forty (40) hours; the maximum balance of compensatory time for employees whose average work week is more or less than forty (40) hours shall be proportionate. No provision of this section establishing a maximum balance of compensatory time shall serve to cancel any compensatory time due to an employee or to deny an employee payment for recorded compensatory time earned in accordance with the provisions of the compensation ordinance in effect at the time the compensatory time was earned.

Each appointing authority shall establish procedures to assure that non-exempt employees are promptly granted time off when such employees request to use their earned compensatory time. Appointing authorities may not deny non-exempt employees' requests for earned compensatory time off except when such approval would create an extreme business hardship. For employees occupying the position of police officer trainee, police probationary officer, and police officer compensatory

time may be used at such times and in such blocks as are mutually agreed upon between the supervisor and the employee and it shall not be unreasonably denied by the supervisor if operating requirements will not be adversely affected. When an appointing authority determines that the work schedule of the organization will not permit the granting of such time off, the appointing authority shall pay the employee in that same pay period for all or a portion equivalent to the time requested of the employee's accrued compensatory time. This provision requiring the prompt granting of requested time off applies only to compensatory time that is earned as a result of the employee working overtime; it does not apply to compensatory time earned as a result of an incentive program or award program. Compensatory time earned by exempt employees shall be granted at the discretion of the appointing authority and upon request of the employee.

(f) Before an employee is transferred, promoted or demoted from a position under one appointing authority to a position under another appointing authority or to another unit with a different appropriation, all compensatory time shall be granted or paid. Upon termination all compensatory time shall be paid. Upon the death of an employee, the person or persons entitled by law to receive any compensation due to the employee shall be paid any amount due to the employee on the date of death.

(g) All departments shall keep daily attendance records of classified employees and shall submit periodic reports of: 1) unexcused absences and leaves; 2) overtime earned, granted, and paid; or 3) the nonoccurrence of same to the Director of Personnel in the form and on the dates specified.

(Ord. No. 71963, § 15, 2-11-2025; Ord. No. 71686, § 15, 6-28-2023; Ord. No. 71512, § 15, 6-16-2022; Ord. No. 71099, § 15, 2-27-2020.)

4.10.160 Holidays.

(a) Classified employees working full-time who are paid a bi-weekly rate shall be entitled to leave with pay, pay, or compensatory time off in lieu of pay or paid leave for regularly scheduled work on the following designated holidays:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Rev. Martin Luther King, Jr. Day
Third Monday in February	Presidents' Day
Last Monday in May	Memorial Day
June 19	Juneteenth Day
July 4	Independence Day
First Monday in September	Labor Day
November 11	Veterans' Day
Fourth Thursday in November	Thanksgiving Day
Day after Thanksgiving	Day after Thanksgiving
December 25	Christmas Day

In addition to the above enumerated designated holidays, full-time classified employees shall be entitled to leave with pay, pay, or compensatory time off in lieu of pay as established by this Section 4.10.160 on any day or partial day the Mayor declares by proclamation the closing of City offices.

Employees working full-time and paid a bi-weekly rate whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter shall receive leave with pay, pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day or shift. For example: Employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday.

When the day of observance of a holiday is changed by state or federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by state or federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When one of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

(b) In addition to the above eleven (11) designated holidays, employees in Section 4.10.020(a) or 4.10.020(b) of this chapter who were employed by the Board of Police Commissioners immediately prior to September

1, 2013, shall receive five (5) personal (discretionary) holidays which shall be scheduled in accordance with department policies; Police Division civilian employees hired on or after September 1, 2013, shall receive no personal (discretionary) holidays.

In addition to pay for hours physically worked on an official holiday, including any overtime to which the employee is entitled under the pay ordinance, employees in Section 4.10.020(a) or Section 4.10.020(b) of this chapter who were employed by the Board of Police Commissioners immediately prior to September 1, 2013, will receive four (4) hours of compensatory time if they are required to work a full eight (8) hour shift that begins on any of the following days:

January 1
Last Monday in May
July 4
First Monday in September
Fourth Thursday in November
December 25

In addition to any pay for hours physically worked, including any overtime to which the employee is entitled under the pay ordinance, employees in Section 4.10.020(a) or Section 4.10.020(b) of this chapter who were employed by the Board of Police Commissioners immediately prior to September 1, 2013, who are required to work the afternoon, evening overlay, or night watch on December 31 will receive four (4) hours of compensatory time.

(c) In addition to the above eleven (11) designated holidays, employees in Section 4.10.020(d) shall receive an additional five (5) personal holidays which shall be scheduled in accordance with Police Division policies.

In addition to pay for hours physically worked on an official holiday, including any overtime to which the employee is entitled under the pay ordinance, employees in Section 4.10.020(d) of this chapter will receive four (4) hours of compensatory time if they are required to work a full eight (8) hour shift that begins on any of the following days:

January 1
Last Monday in May
July 4
First Monday in September
Fourth Thursday in November
December 25

In addition to any pay for hours physically worked, including any overtime to which the employee is entitled under the pay ordinance, employees in Section 4.10.020(d) of this chapter and Police Officer Trainees, who are required to work the afternoon, evening overlay, or night watch on December 31 will receive four (4) hours of compensatory time.

(d) Each appointing authority shall determine the manner of granting holidays and shall report his/her determination to the Department of Personnel, if required by the Director of Personnel. When full-time employees, whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter, excluding employees of the Police Division, are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked.

Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift. When full-time bi-weekly rate employees of the Police Division whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(d) are required to work on a holiday, they shall be entitled to leave with pay on another date designated by the appointing authority in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift.

Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift.

Employees of the EMS Service, whose positions are classified as EMS dispatcher, EMS lead dispatcher, EMT (emergency medical technician), paramedic, or paramedic crew chief, will be compensated with pay in lieu of compensatory time for all holidays and receive twelve (12) hours of personal day leave.

If an employee is docked from the payroll for one (1) hour or more on the full scheduled workday preceding a holiday, the full scheduled work day following a holiday, or on a scheduled holiday, the employee shall not be compensated for the holiday.

The holiday compensation procedures established by this Section 4.10.160 shall apply to full-time classified employees paid a bi-weekly rate. Part-time bi-weekly rate employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work. Employees paid on an hourly or per

performance basis shall not be entitled to holiday compensation, except as otherwise provided in this chapter. In the event that the holiday schedule established in this Section 4.10.160 is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly. The Director of Personnel may establish additional or alternate holiday leave policies for employees occupying public safety positions which qualify for the special overtime pay provisions under federal law or for employees with official work schedules authorized by the Director of Personnel which exceed the normal forty-hour weekly work schedule. Procedures developed in compliance with this Section 4.10.160 shall be designed to treat employees in the same manner who work substantially equivalent work schedules.

Employees whose pay is established in Section 4.10.020(c) of this chapter and are Overtime Code 3 shall be entitled to one hundred forty-four (144) hours of compensatory time off in lieu of all holidays occurring in a calendar year. Employees whose pay is established in Section 4.10.020(c) of this chapter and are Overtime Code 1 or 2 shall be entitled to one hundred twelve (112) hours of leave with pay or compensatory time off in lieu of all holidays occurring in a calendar year. Because of the necessity of maintaining the work schedule of such employees, the Director of Personnel, in cooperation with appointing authorities concerned, shall establish procedures for holiday compensation for such employees who are regularly required to work on holidays. Such procedures shall be designed to treat all employees in the class who work a substantially equivalent schedule in the same manner.

Employees whose pay is established in Section 4.10.020(c) of this chapter shall receive five (5) days of paid leave which shall be referred to as "O" days.

(Ord. No. 71963, § 16, 2-11-2025; Ord. No. 71686, § 16, 6-28-2023; Ord. No. 71512, § 16, 6-16-2022; Ord. No. 71099, § 16, 2-27-2020.)

4.10.170 Vacation.

Vacation leave with pay shall be granted to employees paid a bi-weekly rate in permanent competitive positions working fifty (50) percent time or more. There shall be no advancement of paid vacation leave. The Director of Personnel may establish additional guidelines and policies to govern the administration of vacation leave benefits in the Classified Service.

(a) Vacation hours shall be granted to employees whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(c) with an appointment date before April 23, 1989, as follows. This excludes all civilian employees hired by the Board of Police Commissioners prior to September 1, 2013.

	Pay Established in Section 4.10.020(a) or 4.10.020(b)		Pay Established in Section 4.10.020(c)	
Length of Cumulative Service	**Bi-Weekly Accrual Rates**	**Annual Equivalent**	**Bi-Weekly Accrual Rates**	**Annual Equivalent**
1 but less than 5 years	5	130	3	78
5 but less than 10 years	6	156	5	130
10 but less than 15 years	7	182	6	156
15 but less than 20 years	8	208	7	182
20 or more years	9	234	8	208

Employees employed before July 18, 2010, whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(c) of this chapter completing five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumulative service, or twenty (20) years of cumulative service shall have forty (40) hours of vacation added to their existing balance. This excludes all civilian employees hired by the Board of Police Commissioners prior to September 1, 2013.

(b) Vacation hours shall be granted to employees whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(c) with an appointment date on or after April 23, 1989, as follows. This excludes all civilian employees who were employed by the Board of Police Commissioners prior to September 1, 2013.

	Pay Established in Section 4.10.020(a) or 4.10.020(b) or 4.10.020(c)	
Length of Cumulative Service	**Bi-Weekly Accrual Rates**	**Annual Equivalent**
1 but less than 5 years	3	78
5 but less than 10 years	5	130
10 but less than 15 years	6	156
15 but less than 20 years	7	182
20 or more years	8	208

Employees employed before July 18, 2010, whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(c) of this chapter completing five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumulative service, or twenty (20) years of cumulative service shall have forty (40) hours of vacation added to their existing balance. This excludes all civilian employees hired by the Board of Police Commissioners prior to September 1, 2013.

(c) Employees employed on or after July 18, 2010, will not have the forty (40) hours added to their vacation balance upon completion of five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumulative service, or twenty (20) years of cumulative service.

(d) Employees whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) employed by the Board of Police Commissioners immediately prior to September 1, 2013, employed by the City on September 1, 2013, and continuously employed by the City shall accrue vacation hours as follows:

	Pay Established in Section 4.10.020(a) or 4.10.020(b)	
Length of Cumulative Service	**Bi-Weekly Accrual Rates**	**Annual Equivalent**
1 but less than 12 years	4.62	120.12
12 but less than 21 years	6.16	160.16
21 but less than 30 years	7.70	200.20
30 or more years	9.24	240.24

(e) Police Division employees whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) who were hired on or after September 1, 2013, shall accrue vacation hours as listed below:

	Pay Established in Section 4.10.020(a) or 4.10.020(b)	
Length of Cumulative Service	**Bi-Weekly Accrual Rates**	**Annual Equivalent**
1 but less than 5 years	3	78
5 but less than 10 years	5	130
10 but less than 15 years	6	156
15 but less than 20 years	7	182
20 or more years	8	208

(f) Employees whose pay is established in Section 4.10.020(d) of this chapter and employees whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) and were employed by the Board of Police Commissioners immediately prior to September 1, 2013, and remain so employed shall earn vacation time in accordance with the following schedule on employment anniversary dates as follows:

	Pay Established in Section 4.10.020(a), 4.10.020(b) or 4.10.020(d)	
Length of Cumulative Service	**Bi-Weekly Accrual Rates**	**Annual Equivalent**
1 but less than 12 years	4.62	120.12
12 but less than 21 years	6.16	160.16
21 but less than 30 years	7.70	200.20
30 or more years	9.24	240.24

(1) For employees whose pay is established in Section 4.10.020(d), forty (40) hours of vacation leave may be taken in one-hour increments.

(2) Vacation time is accrued on a bi-weekly basis. No employee will be entitled to or allowed to take any vacation until ninety (90) days of continuous employment from the date of employment.

(g) All references in this chapter, except as otherwise noted, to accrual rates, additions to, and accrual maximums for vacation are for employees working a scheduled work week of forty (40) hours. Vacation rates, additions and maximums shall be computed on a proportionate basis for employees whose average work week is more or less than forty (40) hours. When an eligible employee's scheduled work week is changed, the employee's rate of accrual shall be changed proportionately. All references in this chapter to cumulative service for vacation shall mean cumulative service without a break in service of more than one (1) year, except as provided otherwise in this chapter. No employee who works less than fifty (50) percent time or who is serving in a limited-term position shall be eligible to accrue vacation.

(h) (1) For those employees hired before or after the effective date of this chapter whose pay is established in Section 4.10.020(a), 4.10.020(b) or Section 4.10.020(c) who work an average work week of forty (40) hours, the maximum vacation balance shall be six hundred (600) hours. For those employees hired before the effective date of this chapter whose pay is established in Section 4.10.020(d) and who work an average work week of forty (40) hours, the maximum vacation balance shall be five hundred (500) hours. Employees whose pay is established in Section 4.10.020(d) who have more than five hundred (500) hours of vacation on the effective date of this chapter shall receive a one-time

payment for all vacation hours accrued and unused over five hundred (500) hours. For those employees hired on or after the effective date of this chapter whose pay is established in Section 4.10.020(d) and who work an average work week of forty (40) hours, the maximum vacation balance shall be two hundred and forty (240) hours. An appointing authority, upon written request and with the prior approval of the Director of Personnel, may authorize an employee or group of employees to exceed these maximums. Vacation accrual maximums for those working more or less than forty (40) hours per week, but at least fifty (50) percent time shall be proportionate to the number of hours worked in a bi-weekly pay period.

(2) When an employee's full-time average work week is changed, the maximum vacation balance shall be changed proportionately. In addition, the employee shall have his/her current vacation balance adjusted so that the vacation shall maintain the same position relative to the new maximum balance as existed with the employee's previous maximum balance.

(3) Accrual of vacation shall cease when an employee accumulates the maximum vacation balance established for the assigned work schedule and shall not resume until the vacation balance is less than the maximum amount.

(i) Accrual of vacation shall begin and be credited upon the first bi-weekly pay period and each pay period thereafter, but employees must complete the entire pay period to accrue the vacation leave at the end of said pay period:

(1) Of appointment;

(2) Of return to duty from leave of absence;

(3) Of restoration to employment of one-half (fifty (50) percent) time or more.

Vacation leave shall be granted in whole hour units. On termination of service, any fractional hour shall be made whole. The accrual of vacation leave shall cease on the employee's last day at work.

(j) Appointing authorities shall be responsible for establishing all vacation leave schedules but may not discipline employees by imposing unusual vacation schedules. Vacation shall be granted to the employee as provided by this chapter in one of the following ways:

(1) When the employee requests vacation leave in accordance with departmental policies;

(2) When directed to take paid time off by the appointing authority;

(3) When an employee is terminated or resigns from the Classified Service;

(4) When an employee whose salary is established in Section 4.10.020(a), 4.10.020(b), 4.10.020(c) or 4.10.020(d) reaches the established maximum accrual and would cease accruing vacation and notifies the appointing authority in writing of his/her intention to schedule vacation. Such notice shall be at least seven (7) days prior to the first work day the employee intends to take off. If the appointing authority fails to establish a different vacation schedule, the employee may take the paid leave, which was proposed in writing.

(5) With the approval of the appointing authority, an employee may request and receive payment from the appointing authority for forty (40) hours of vacation accrual in lieu of scheduling paid leave provided that the full vacation allowance for that year is not exceeded. This may be done a maximum of once in each calendar year. Management employees may request payment from the appointing authority for up to an additional forty (40) hours of their vacation accrual balances in lieu of scheduling paid leave if their schedules do not permit them to be absent from work. Employees whose pay is established in Section 4.10.020(c) of this chapter may request payment for up to ninety-six (96) hours of vacation. These requests are subject to the prior approval of the Director of Personnel.

(k) During the first twelve (12) months of employment, unless stated otherwise in this chapter, accrued vacation may be granted to an employee provided that the employee has completed ninety (90) days of continuous service. When employment is terminated before completing twelve (12) months of continuous service, any previously granted vacation leave shall be deducted from the employee's final pay. When the service of an employee is terminated after twelve (12) months of continuous service, any accumulated vacation that is due the employee shall be paid.

(l) Employees who separate from the Classified Service, who are certified from a reemployment list, and who return to the Classified Service within twenty-four (24) months of the separation, will be given credit for prior continuous service in determining the vacation accrual rate in accordance with Section 17(a), 17(b), 17(d), 17(e) or 17(f) of this chapter and based on the date of the employee's original appointment.

(m) Employees who move to the Classified Service from the Unclassified Service shall be given credit for the years of service in the Unclassified Service in

determining the vacation accrual rate in accordance with Section 17(a) or 17(b) of this chapter and based on the date of the employee's original appointment.

(n) Employees who return to work from a "reemployment from layoff" eligible list shall be eligible to use vacation as soon as it is accrued, unless stated otherwise in this chapter, provided the employee has completed six (6) months of continuous service prior to the layoff and with approval of the appointing authority. An employee who has completed less than six (6) months of continuous service will be required to complete the remaining portion of the six (6) months period before being eligible to use vacation.

Any such reemployed worker shall be given credit for prior continuous service in determining the employee's vacation accrual rate in accordance with the schedule established in Section 4.10.170(a), 4.10.170(b), 4.10.170(d), 4.10.170(e) or 4.10.170(f) of this chapter and based on the employee's original appointment. A commissioned officer who retires and is rehired as a civilian employee will be considered a new employee for vacation purposes.

(o) Appointing authorities shall be responsible for the management of their vacation schedules so as to most effectively administer their organizations and fulfill the desire of employees in the establishment of leave schedules.

(p) Accrued vacation shall be carried with an employee when transferred, promoted, or demoted from a position under one appointing authority to a position under another appointing authority without a break in service or change in method of pay. Upon the death of an employee, the person or persons entitled by law to receive any compensation due the employee shall be paid the amount due the employee for accrued vacation.

(q) With the approval of the appointing authority, a retiring employee may be paid on the payroll for accrued vacation in the month prior to retirement without inclusion in the employee's final average compensation. An appointing authority may pay previously accrued vacation off in a lump sum to an employee whose service with the City has terminated. Such payment shall be made on the employee's last regular paycheck.

(r) Employees occupying excepted positions in the Classified Service shall be granted vacation at the discretion of their appointing authority. An employee whose term in an excepted position ends and who is then appointed to a permanent competitive position working fifty (50) percent time or more shall become eligible to accrue vacation leave with pay upon appointment to the competitive position. Length of cumulative service for the purpose of determining rate of vacation leave accrual shall be based on the employee's original date of appointment to the excepted position, providing there was no break in service between expiration of the excepted position and appointment to the permanent competitive position. The date of appointment to the permanent competitive position shall be used to determine the appropriate rate of vacation accrual for the corresponding length of cumulative service in accordance with the schedule established in Section 4.10.170(b).

(s) Appointing authorities shall report leave with pay for vacation and such other authorized absences as the Director of Personnel shall designate to the Department of Personnel in such form and at such time as the Director of Personnel may require.

(Ord. No. 71963, § 17, 2-11-2025; Ord. No. 71686, § 17, 6-28-2023; Ord. No. 71512, § 17, 6-16-2022; Ord. No. 71099, § 17, 2-27-2020.)

4.10.180 Sick leave.

(a) Employees (non-Police Division employees) ceased accruing sick leave beginning July 18, 2010. Employees in Section 4.10.020(a) or Section 4.10.020(b) employed by the Board of Police Commissioners prior to September 1, 2013, employed by the City on September 1, 2013, and continuously employed by the City ceased accruing sick leave on June 30, 2014. An employee may choose to use his/her sick leave in accordance with regulations established by the Director of Personnel.

(b) An active employee who is a member of the employees retirement system or the firemen's retirement system of the City of St. Louis, and who applies for retirement and immediately retires from active service, shall receive payment for his/her sick leave balance less any sick leave credited or paid to a member or used in the calculation of retirement benefits under this or any other ordinance(s). If the employees retirement system or firemen's retirement system provides for sick leave to be credited or paid to a member or used in the calculation of retirement benefits, this payment shall be limited to a maximum of fifty (50) percent of the value of the employee's sick leave balance. If the employees

retirement system of the City of St. Louis provides for sick leave to be credited or paid to a member or used in the calculation of retirement benefits, this payment shall be fifty (50) percent of the value of the employee's sick leave balance at time of retirement.

(c) If a member of the employees retirement system or the firemen's retirement system of the City of St. Louis who had been otherwise eligible for normal or early service retirement dies his/her estate may receive payment based on the calculation above on the employee's sick leave balance, if any. Payment shall be made in accordance with the procedures established by the Director of Personnel.

(d) An employee who is reemployed from an authorized layoff shall have his/her prior sick leave balance if any restored, provided this balance has not been used in the determination of pension benefits paid to the retiree.

(e) Commissioned officers will be granted sick leave at the rate of three and seventy one-hundredths (3.70) hours bi-weekly. In addition, military reinstatements will be credited, on the date of their reinstatement, with the number of sick leave credits accumulated prior to entering the military. Officers hired prior to April 20, 2011, may earn and bank sick leave hours on an unlimited basis until termination from the Division.

(f) Commissioned officers hired prior to April 20, 2011, with thirty (30) years of service and possessing two thousand two hundred (2,200) accrued sick leave hours, will receive compensation for one-half of their accumulated sick leave hours. Officers hired prior to April 20, 2011, who have at least twenty (20) years of service who possess 1,600 accrued sick leave hours, will receive compensation for one-fourth of their accumulated sick leave hours, and also receive one hundred seventy-three and thirty-three one-hundredths (173.33) hours pay (two thousand eighty (2080) hours divided by twelve (12)). All other officers hired prior to April 20, 2011, terminating their employment with the Division will receive compensation for one-fourth (1/4) of their accumulated sick leave hours at the time of termination. These benefits are not granted to employees who have pled guilty, been found guilty or otherwise convicted of a crime prior to termination.

(g) Employees in Section 4.10.020(a) or Section 4.10.020(b) formerly employed by the Board of Police Commissioners prior to April 20, 2011, and continuously employed by the City with thirty (30) years of service and possessing two thousand two hundred (2,200) accrued sick leave hours, will receive compensation for one-half of their accumulated sick leave hours. Employees in Section 4.10.020(a) or 4.10.020(b) formerly employed by the Board of Police Commissioners hired prior to April 20, 2011, and continuously employed by the City who have at least twenty (20) years of service who possess one thousand six hundred (1,600) accrued sick leave hours, will receive compensation for one-fourth (1/4) of their accumulated sick leave hours, and also receive one hundred seventy-three and thirty-three one-hundredths (173.33) hour pay (two thousand eighty (2080) hours divided by twelve (12)). All other employees in Section 4.10.020(a) or Section 4.10.020(b) employed by the Board of Police Commissioners prior to April 20, 2011, and continuously employed by the City who terminate their employment with the Division will receive compensation for one-fourth of their accumulated sick leave hours at the time of termination. These benefits are not granted to employees who have pled guilty, been found guilty or otherwise convicted of a crime prior to termination.

(h) All Commissioned officers, excluding Police Officer Trainees, may be eligible to receive paid time off for perfect and near perfect attendance.

(i) There shall be no advancement of paid sick leave. Sick leave shall be paid at full pay at the current rate of compensation.

(Ord. No. 71963, § 18, 2-11-2025; Ord. No. 71686, § 18, 6-28-2023; Ord. No. 71512, § 18, 6-16-2022; Ord. No. 71099, § 18, 2-27-2020.)

4.10.190 Medical leave.

(a) Medical leave with pay shall be granted to bi-weekly rate employees in permanent competitive positions working fifty (50) percent time or more in accordance with regulations and procedures established by the Director of Personnel.

(1) All employees, unless otherwise stated in this chapter, shall accrue three (3) hours of medical leave for each bi-weekly pay period of employment but must complete the entire pay period to accrue the medical leave at the end of said pay period. This accrual rate is established for employees working an average work week of forty (40) hours. Medical leave shall be computed on a proportionate basis for employees whose average work week is more or less than forty (40) hours.

An eligible employee may be granted paid medical leave by his/her appointing authority after completing ninety (90) days of continuous service.

(2) Employees in Section 4.10.020(a) or Section 4.10.020(b) hired by the Police Division on or after September 1, 2013, shall accrue medical leave as stated above in Section 4.10.190(a)(1).

(3) Employees in Section 4.10.020(a) or Section 4.10.020(b) hired by the Board of Police Commissioners before September 1, 2013, shall be entitled to all of the sick and medical leave accrued during such employment. Subject to the provisions of Section 4.10.190(a), medical leave with pay shall be granted at the rate of three and seventy one-hundredths (3.70) hours bi-weekly to employees in Section 4.10.020(a) or Section 4.10.020(b) hired by the Board of Police Commissioners before September 1, 2013, employed by the City and continuously employed by the City on September 1, 2013.

(b) The Director of Personnel may establish a system of cash awards, paid time off or other incentives to reward employees for perfect and near perfect attendance.

(c) An appointing authority shall remove an employee from the payroll for unexcused absence in accordance with regulations and procedures established by the Director of Personnel. When an employee is docked from the payroll under the provisions of this section, the amount deducted from his/her regular bi-weekly rate of pay shall be one (1) times the regular hourly rate as defined in this chapter for each hour of unexcused absence. If an employee is docked from the payroll for one (1) hour or more in a bi-weekly pay period, he/she will cease to accrue medical leave for the pay period.

(d) If management decides to send their employees or a group of employees home due to inclement weather, they will not lose their medical leave accrual for that pay period.

(e) All leave with or without pay for illness, injury, or physical inability to perform assigned duties shall be recorded on the payroll or a subsidiary document in the manner established by the Director of Personnel. Compensation for periods of absence from work when an employee sustains an injury by accident on the job shall be governed by the provisions of Section 4.10.240 (Workers' compensation and disability leave) of this chapter.

(f) An employee who is reemployed from an authorized layoff shall have his/her prior medical leave balance and sick leave balance restored if any, provided any sick leave balance has not been credited to the employee's length of service in determining pension benefits paid to the retiree. An employee who is reemployed from an authorized layoff and who has a medical and/or sick leave balance and who completed twenty-six (26) weeks of continuous employment prior to the layoff may take approved medical and/or sick leave upon reemployment.

(g) Each appointing authority shall institute procedures, in accordance with regulations established by the Director of Personnel that will discourage the improper use of medical leave with pay. When an employee is removed from the payroll for absence not approved by the appointing authority, the employee shall be notified promptly in writing.

(h) Employees shall not receive payment for any medical leave balance, and it shall not be used in the calculation of retirement benefits or payments under this chapter or any other ordinance.

(i) There shall be no advancement of medical leave. (Ord. No. 71963, § 19, 2-11-2025; Ord. No. 71686, § 19, 6-28-2023; Ord. No. 71512, § 19, 6-16-2022; Ord. No. 71099, § 19, 2-27-2020.)

4.10.200 Military leave.

The City of St. Louis will follow all applicable state and federal laws on the granting of military leave and reemployment rights.

Each employee is required to give advance notice (at least thirty (30) days prior to departure when feasible), preferably in writing, of service obligation or intention to perform services in the uniformed services, unless such notice is prevented by military necessity, as determined by a designated authority, or impossible or unreasonable under all of the circumstances.

Upon the expiration of military leave of absence, the employee shall be reinstated to the class of position he/she occupied at the time the leave was granted without breaking continuity of service. Failure of an employee to report for duty within the time pursuant to state or federal law shall be just cause for dismissal. The employee's accumulated leave balance(s) shall be restored to the employee upon his/her return.

Full-time, permanent employees paid a bi-weekly rate of pay who are called to active duty as a member of the National Guard or any reserve component of the Armed Forces of the United States and who are placed on a military leave of absence will be granted compensation in the amount to offset the difference between

the employee's gross bi-weekly pay with the City and his/her total military pay plus allowances if such military pay and allowances is less than the employee's regular gross bi-weekly rate of pay and subject to submission of documentation as required by the Director of Personnel.

(Ord. No. 71963, § 20, 2-11-2025; Ord. No. 71686, § 20, 6-28-2023; Ord. No. 71512, § 20, 6-16-2022; Ord. No. 71099, § 20, 2-27-2020.)

4.10.210 Leaves of absence and family/medical leave.

An employee may request a leave of absence, or an appointing authority may request a leave of absence for an employee, for any reason under the City's general leave policy, or a "Family/Medical Leave of Absence" for certain qualifying reasons under provisions of "The Family and Medical Leave Act of 1993" as provided in this chapter and under additional provisions and regulations as determined by the Director of Personnel.

(a) An appointing authority, with the approval of the Director of Personnel, may grant an employee in a competitive position a general leave of absence without pay for a period of one (1) year, which may be extended, with the prior approval of the Director of Personnel.

Upon the expiration of such leave of absence, the employee shall be reinstated to the competitive position he/she occupied at the time the leave was granted provided the position is still in existence and he/she are able to perform the duties of the position. The employee shall be reinstated to the competitive position at the same relative rate in the salary range the employee occupied at the time the leave was initiated. Failure of an employee to report for duty promptly at the expiration of the leave shall be just cause for dismissal. If necessary to the efficient conduct of the business of the City, an employee on leave other than military leave or qualifying family/medical leave may be notified by the appointing authority, with the approval of the Director of Personnel, to return prior to the expiration of such leave. Failure of the employee to return within ten (10) calendar days after receipt of such notice shall terminate his/her leave of absence and be just cause for dismissal, subject to any applicable federal, state or local regulations.

(b) The City of St. Louis will follow all applicable state and federal laws on the granting of family/medical leave. The City of St. Louis will provide up to six (6) weeks of paid family/medical leave, in accordance with the City's "Family/Medical Leave Policy."

The Director of Personnel shall establish additional rules, guidelines and procedures for the effective administration of the City's "Family/Medical Leave Policy." The policy shall comply with all provisions of the "Family/Medical Leave Act of 1993" and any amendments thereafter.

Employees must take all of their accrued time (sick leave, medical leave, vacation leave) prior to being placed on leave without pay status for approved Family and medical leave, except employees can keep one (1) week of vacation hours (if they have accrued one (1) week of vacation and are eligible to take them). Employees will be allowed to use all their compensatory time, if requested by employee.

(c) Any employee in a competitive position who is appointed to an excepted position in the Classified Service shall be granted an in-service leave without pay from the competitive position during the term to which he/she is appointed to the excepted position. Such leave shall be for the term of the appointment to the excepted position and until his/her successor qualifies. Upon the expiration of the appointment to the excepted position, the employee shall be reinstated to the competitive position he/she occupied immediately prior to the in-service leave. The employee shall be reinstated to the competitive position as under a temporary promotion pursuant to Section 4.10.060(a)(2) of this chapter. Employees who are returned to a competitive position shall retain any vacation, compensatory time, sick leave, or medical leave balance in effect at the time of granting of the leave of absence for appointment to the excepted position. Employees shall be given credit for time spent in an excepted appointment in computing eligibility for additional vacation leave accrual.

(d) In the event that emergency conditions occur which require the closing of City-operated facilities, or the temporary cessation of functions carried out by classified employees, the Mayor of the City of St. Louis may declare an emergency and require an employee or group of employees to take leaves of absence with or without pay while such emergency conditions exist. In the event that the Mayor requires that the leave of absence be without pay, an employee with vacation or accrued compensatory time may elect to take the accrued time off with pay in lieu of all or a part of such

non-paid leave of absence. Such non-paid leave of absence shall not interrupt continuity of service for vacation accrual. An emergency leave of absence declared by the Mayor shall not exceed ninety (90) days.

(e) Employees who are granted general leaves of absence and other non-paid leaves of absence, except military leave, must take all accrued vacation at the start of the leave of absence except as otherwise provided in this chapter. Employees who are granted or placed on a non-paid leave of absence will not accrue vacation, sick leave, and medical leave during the period of non-paid leave. Upon the expiration of such leaves of absence, the employee shall follow the procedures as established in this Section 4.10.210 and any other applicable regulations and procedures as established by the Director of Personnel.

(f) An appointing authority, with the prior approval of the Director of Personnel, may put an employee on a forced leave of absence with or without pay pending the outcome of an investigation or of a pending disciplinary action against the employee. Employees being placed on forced leave may elect to be placed on either vacation leave or compensatory time.

(g) In the event that a fiscal crisis occurs in the City of St. Louis, employees may request voluntary furloughs. The Director of Personnel may issue regulations to govern the furlough program.

(Ord. No. 71963, § 21, 2-11-2025; Ord. No. 71686, § 21, 6-28-2023; Ord. No. 71512, § 21, 6-16-2022; Ord. No. 71099, § 21, 2-27-2020.)

4.10.220 Insurance benefits.

The City of St. Louis is hereby authorized to devise and establish by contract or otherwise plans for life, health, medical, disability, and other insurance coverage deemed necessary for employees in the Classified Service and other employees for the City and their dependents. The Director of Personnel shall develop and administer programs to provide for such coverage. The Director of Personnel shall confer with the Board of Estimate and Apportionment by February 1 of each year regarding coverage plans and the appropriate funding level. The Director shall then be charged with the responsibility of establishing the applicable funding level and remittance rates for the aforementioned plans and certify same to the Comptroller and Budget Director by March 1 of each year. The Director of Personnel may amend said rates as needed.

(Ord. No. 71963, § 22, 2-11-2025; Ord. No. 71686, § 22, 6-28-2023; Ord. No. 71512, § 22, 6-16-2022; Ord. No. 71099, § 22, 2-27-2020.)

4.10.230 Death benefit.

In the event any employee of the City whose pay is established by this chapter dies as a result of injuries arising out of and in the course of his/her employment by the City, the City shall pay compensation in accordance with the Missouri Workers' Compensation Law. The Director of Personnel and the City Counselor shall establish procedures for making the payments required by the Missouri Workers' Compensation Law. The Comptroller shall designate the fund or appropriation out of which such payment shall be made. Such compensation shall be in addition to any life insurance benefits paid for by the City or by the employee which is available to the employee's beneficiaries and also in addition to any benefit provided by the Employees Retirement System of the City of St. Louis, the firemen's retirement system of the City of St. Louis, or the firefighters retirement plan.

(Ord. No. 71963, § 23, 2-11-2025; Ord. No. 71686, § 23, 6-28-2023; Ord. No. 71512, § 23, 6-16-2022; Ord. No. 71099, § 23, 2-27-2020.)

4.10.240 Workers' compensation and disability leave.

(a) Any employee in the Classified Service whose class title and grade are established in Section 4.10.010(a) and denoted by the suffix "G," "M," "T" or "E" of this chapter, including employees who are compensated on a per performance or unit of work basis, who shall suffer personal injury by accident or occupational disease arising out of and in the regular course of employment while engaged in or about the premises where an employee's duties are being performed or where an employee's presence is required as part of his/her employment, shall promptly report such injury by accident or occupational disease to his/her immediate supervisor. The supervisor shall in turn report, through the appointing authority, all facts concerning the incident to the City Counselor and the Director of Personnel. The appointing authority shall promptly provide such written information and recommendations as may be requested by the City Counselor to aid in making the determination of the period of disability.

The employee who suffers a personal injury as described in part (a) of this section, and which results in temporary disability, may elect to use sick or medical leave for the first three (3) days of temporary disability. Thereafter, the employee will be compensated at the rate mandated by the Missouri Workers' Compensa-

tion Law. If the period of disability extends fourteen (14) calendar days or more, the three (3) days of sick or medical leave used during the first three (3) days of disability will be restored to the employee's sick or medical leave balance. The City Counselor shall determine the actual amount of compensation and length of time during which payments are made for such temporary disability in accordance with the Missouri Workers' Compensation Law.

(b) (1) Any employee in the competitive service whose class title and grade are established in Section 4.10.010(a) of this chapter and denoted by the suffix "F" who shall suffer personal injury by accident or occupational disease while engaged in actual fire suppression, or related emergency response activities on or about the premises where these activities are being performed, or during transportation to and from the scene of the fire, or emergency, shall promptly report such injury to his/her immediate supervisor. The injury shall be promptly reported through appropriate management personnel to the Director of Personnel and the City Counselor. During the period of temporary disability which has been determined by the City Counselor to be a result of an injury by accident or occupational disease as defined above, the employee may be continued on the payroll at the regular bi-weekly rate less any amount the employee would otherwise pay in taxes on that portion of the benefit found to be exempt from taxation under the Missouri Workers' Compensation Law, or the federal tax code. Disability leave may also be granted when an employee suffers injury as a result of participation in Training Simulation of an exceptional and highly dangerous nature wherein the appointing authority or the Director of the Department of Public Safety has gained the approval of the Director of Personnel prior to such Training Simulation.

(2) Any employee in the competitive service whose class title and grade are established in Section 4.10.010(a) of this chapter and denoted by the suffix "F" who shall suffer personal injury by accident or occupational disease arising out of and in the regular course of employment while engaged in or about the premises where his/her duties are being performed, except as otherwise provided in Section 4.10.150(b)(1) above shall likewise, promptly report such injury to his/her immediate supervisor, who shall report, through his/her appointing authority, all facts concerning the incident to the City Counselor and the Director of Personnel. During any such period of temporary disability, the employee shall be entitled to workers' compensation benefits as prescribed by State Law.

(3) Employees in the competitive service whose pay is established in Section 4.10.020(d) of this chapter who suffer personal injury by accident or occupational disease arising out of and in the regular course of employment shall receive compensation in accordance with Police Division policies. Employees in the competitive service whose pay is established in Section 4.10.020(a) or Section 4.10.020(b) of this chapter and who were employed by the Board of Police Commissioners and who remain employed by the Police Division who suffer personal injury by accident or occupational disease arising out of and in the regular course of employment shall receive compensation in accordance with Police Division policies.

(c) The City Counselor, the Director of Personnel, or the appointing authority may require an employee to undergo a physical examination and medical or surgical treatment at the expense of the City to diagnose and treat injuries or illnesses arising out of employment.

(d) The City Counselor and the Comptroller shall establish procedures for paying compensation to employees or former employees who are permanently disabled and due compensation under the Missouri Workers' Compensation Law. The Comptroller shall designate the fund or appropriation out of which such payment shall be made.

(e) The City Counselor and the Director of Personnel shall be responsible for the administration of the provisions of this section and shall establish and publish procedural regulations for the administration of the program. Each appointing authority shall establish procedures to comply with the provisions of this section and established regulations.

(Ord. No. 71963, § 24, 2-11-2025; Ord. No. 71686, § 24, 6-28-2023; Ord. No. 71512, § 24, 6-16-2022; Ord. No. 71099, § 24, 2-27-2020.)

4.10.250 Jury and witness leave.

(a) Jury leave with pay shall be granted to bi-weekly rate employees working fifty (50) percent time or more for such time when such employees are serving as jurors pursuant to order of the St. Louis Circuit Court or United States District Court in St. Louis. Any bi-weekly rate employee, when so summoned for jury service, shall report such fact within seventy-two (72)

hours to his/her appointing authority and display to the appointing authority the summons which the employee has received and shall give the appointing authority in writing the date and the time of such jury service. No bi-weekly rate employee shall receive any compensation from the Jury Commissioner or the United States District Court system for jury service for days the employee receives compensation from the City. A bi-weekly rate employee may keep the jury stipend for days when the employee receives no compensation from the City (off days, docks, leaves, etc.). Upon being discharged from serving as a juror by the court or Jury Commissioner, the employee shall forthwith report to his/her appointing authority if discharged during their normally scheduled work hours and shall submit to his/her appointing authority a written statement from the Jury Commissioner certifying that the employee has served as a juror and the time and date so served. The appointing authority shall, upon receipt of the statement of jury service, credit the employee with paid jury leave for such service.

(b) Leave with pay shall be granted to bi-weekly rate employees for such time when the employee's presence is required by the prosecutor in a criminal proceeding or grand jury procedure, a trial in prosecuting accused criminals (or for jury service in federal court). Any bi-weekly rate employee, when so subpoenaed as a prosecution witness or whose presence is required as a part of a grand jury inquiry, shall report such fact within seventy-two (72) hours to his/her appointing authority and shall give the appointing authority in writing the date and time his/her presence is required for such criminal prosecution. Each appointing authority shall establish controls to ensure that any paid leave is actually required by the prosecuting authority. An appointing authority may require an employee to furnish satisfactory evidence of being required to be off the job and that all time off was in connection with the prosecution of the case. This procedure shall apply for employee participation in criminal prosecution in State or federal courts.

(Ord. No. 71963, § 25, 2-11-2025; Ord. No. 71686, § 25, 6-28-2023; Ord. No. 71512, § 25, 6-16-2022; Ord. No. 71099, § 25, 2-27-2020.)

4.10.260 Deferred compensation.

(a) Authority is hereby granted for the establishment of a deferred compensation plan for the City of St. Louis.

(b) In accordance with the regulations applicable to the plan, as set out herein, the Comptroller is authorized to enter into an agreement with eligible participants, whereby said participants may designate a portion of their future earnings to be deducted by the City and placed in a fund to be designated "City of St. Louis Deferred Compensation Plan Fund" for the purpose of providing tax deferred benefits to the participants upon retirement.

(c) The Board of Estimate and Apportionment is hereby authorized to establish or select a specific plan or plans in accordance with the requirements set out in this chapter. In establishing the plan, the Board of Estimate and Apportionment may elect to retain outside parties to provide administrative and/or investment services after following competitive bidding procedures. The Board of Estimate and Apportionment is authorized, after analyzing the various competitive bids submitted in accordance with the requirements of this chapter, to select the plan or plans it determines to meet the requirements established as a part of the competitive bidding procedures and to be in the best interest of the participants. No investment plan shall be considered unless offered by a duly licensed resident agent representing a company duly licensed and authorized by the State of Missouri and other applicable federal regulatory agencies to offer such insurance or investment programs.

In the event Federal or State legislation is changed in a manner affecting and/or relating to any of the aforementioned deferred compensation provisions contained in this section, the Board of Estimate and Apportionment of the City of St. Louis may amend the deferred compensation plan accordingly and may execute any and all documents necessary to achieve and effectuate the recommended changes.

(Ord. No. 71963, § 26, 2-11-2025; Ord. No. 71686, § 26, 6-28-2023; Ord. No. 71512, § 26, 6-16-2022; Ord. No. 71099, § 26, 2-27-2020.)

4.10.270 Retirement.

The following provisions shall apply to the Employees Retirement System:

(a) "Final average compensation" is equal to one-half (½) of the sum of (1) and (2) below:

(1) The annual compensation received by a member for the two (2) consecutive years of creditable service in which the highest compensation was received preceding the termination of his/her employment, and

(2) The balance of a member's sick leave on the date of retirement less sick leave hours paid to the member upon termination of his/her employment and less sick leave hours considered as creditable service for the purpose of determining eligibility for and/or calculation of retirement benefits, except that said balance cannot exceed twenty-five (25) percent of a member's total sick leave on the date of retirement.

(b) If a member has less than two (2) consecutive years of creditable service his/her final average compensation shall be equal to the sum of (1) and (2) below, divided by (3) below and then multiplied by (4) below:

(1) The sum of monthly compensation received by the member for each consecutive month of creditable service immediately preceding the termination of his/her employment;

(2) The balance of a member's sick leave pay on the date of retirement less sick leave hours paid to the member upon termination of his/her employment and less sick leave hours considered as creditable service for the purpose of determining eligibility for retirement benefits, except that said balance cannot exceed twenty-five (25) percent of a member's total sick leave on the date of retirement.

(3) The number of consecutive months of creditable service immediately preceding the termination of his/her employment, and

(4) Twelve (12).

The years of creditable service of a member shall be the number of years and completed full calendar months of service during which he/she receives compensation from the first day of the calendar month following the date of the beginning of each employment with an employer until his/her employment is terminated, subject to the provisions of this section. The years of creditable service of an employee (as that term is defined in Subsection 11 of Section Four of Ordinance 66511) hired after the operative date (as that term is defined in Subsection 18 of Section Four of Ordinance 66511) who had attained the age of sixty (60) years at initial employment shall be the number of years and completed months of service during which he/she receives compensation from October 1, 1988, and hereafter, from the first day on or after October 1, 1988, of the beginning of each employment with an employer until his/her employment is terminated. No creditable service shall be granted for any period of employment before October 1, 1988, after the calendar month in which the member attains age seventy (70). No creditable service for prior employment shall be granted to an employee who becomes a member after April 1, 1960, unless he/she was employed by an employer on April 1, 1960.

A member's accrued sick leave balance less the sum of (a), (b) and (c) below shall be considered as additional creditable service for calculation of retirement benefits under any provision of Ordinance 66511, as amended:

(a) Sick leave hours considered as creditable service for the purpose of determining eligibility for retirement benefits, and

(b) Sick leave hours paid to the member upon termination of his/her employment, and

(c) Sick leave hours used in determining final average compensation.

(Ord. No. 71963, § 27, 2-11-2025; Ord. No. 71686, § 27, 6-28-2023; Ord. No. 71512, § 27, 6-16-2022; Ord. No. 71099, § 27, 2-27-2020.)

4.10.280 Police Division.

The compensation terms contained herein for officers and employees assigned to the Police Division are subject to change in the event of the enactment of any laws or regulations that result in the City no longer possessing sole and exclusive right to operate and direct all officers and employees assigned to the Police Division.

(Ord. No. 71963, § 31, 2-11-2025; Ord. No. 71686, § 31, 6-28-2023.)

Chapter 4.12

MOTOR VEHICLE RESPONSIBILITY

Sections:

4.12.010	**Comptroller to furnish proof.**
4.12.020	**City Counselor to investigate accidents.**
4.12.030	**Self-insurance plan—Adopted.**
4.12.040	**Self-insurance plan—Limit on settlements.**

4.12.010 Comptroller to furnish proof.

The Comptroller is authorized to furnish proof of financial responsibility as provided by the "Motor Vehicle Safety Responsibility Law" of the state with respect to any motor vehicle owned by the City or with respect to any City employee or police officers of the St.

Louis Metropolitan Police Department who is involved in a motor vehicle accident, for which proof of financial responsibility is required by law, while any City employee or police officer is operating a motor vehicle owned by the City in the performance of and within the scope of his official duties. (1960 C., § 58.010; 1994 C., § 4.12.010; Ord. No. 50131, § 1, 1960.)

Editor's Note:

The above section should have referenced The Motor Vehicle Financial Responsibility Law (RSMo 303.010).

McQuillin:

24.634 Financial responsibility of owners and operators.

4.12.020 City Counselor to investigate accidents.

The City Counselor shall investigate every accident involving a motor vehicle owned by the City and operated by a City employee or police officer of the St. Louis Metropolitan Police Department and shall recommend to the Comptroller whether the facts and circumstances indicate that the operator of the motor vehicle was acting within the scope and performance of his official duties when the accident occurred for which proof of financial responsibility should be given by the City to avoid suspension of such operator's license. (1960 C., § 58.020; 1994 C., § 4.12.020; Ord. No. 50131, § 2, 1960.)

4.12.030 Self-insurance plan—Adopted.

Pursuant to Conference Committee Substitute for Senate Substitute for Senate Committee Substitute for House Substitute for House Bill No. 1650, 79th General Assembly, Section 2.1, the City adopts a self-insurance plan for the purposes of injuries directly resulting from the negligent acts or omissions by employees of the City arising out of the operation of motor vehicles within the course of their employment and injuries caused by the condition of property of the City if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury directly resulted from the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of harm of the kind of injury which was incurred, and that either a negligent or wrongful act or omission of an employee of the City within the course of his employment created the dangerous condition or the City had actual or constructive notice of the dangerous condition in sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (1994 C., § 4.12.030; Ord. No. 57821, § 1, 1979.)

4.12.040 Self-insurance plan—Limit on settlements.

In the tort claims described in Section 4.12.030, there shall be a limit on settlements, awards, and judgments of one hundred thousand dollars ($100,000.00) for all claims arising out of a single occurrence and a limit of fifty thousand dollars ($50,000.00) for any one person in a single accident or occurrence. (1994 C., § 4.12.040; Ord. No. 57821, § 2, 1979.)

Chapter 4.13

LICENSING AND USE OF CITY AUTOMOBILES

Editor's Note:

Ord. No. 68716, adopted July 13, 2010, repealed Ch. 4.1and enacted a new chapter as set out herein. The former Ch. 4.13, §§ 4.13.010—4.13.040, pertained to licensing of city automobiles and derived from Ord. No. 58598, §§ 1—4, 1982.

Sections:

4.13.010 Personal licensing or use—Prohibited.

4.13.020 Personal licensing or use—Exemptions.

4.13.030 Identification of City automobiles—Required.

4.13.040 Identification of City automobiles—Exemptions.
4.13.050 Use of City motor vehicles.
4.13.060 Motor vehicle records.
4.13.070 Reimbursement of personal motor vehicle usage for official City business.
4.13.080 Adoption of a City Motor Vehicle Policy Manual Consistent with Chapter 4.13.

4.13.010 Personal licensing or use—Prohibited.

No official or employee of the City shall apply for or obtain Missouri state license plates for use on any passenger automobile owned by the City except for those automobiles which are specifically exempted from this prohibition by the provisions of Section 4.13.020. No official or employee of the City shall affix or attach Missouri state license plates on any passenger automobile owned by the City or drive or use any passenger automobile owned by the City to which Missouri state license plates are affixed or attached except for those automobiles which are specifically exempted from this prohibition by the provisions of Section 4.13.020. (1994 C., § 4.13.010; Ord. No. 68716, § 1, 7-13-2010)

4.13.020 Personal licensing or use—Exemptions.

The prohibitions on the use of Missouri state license plates contained in Section 4.13.010 shall not apply to passenger automobiles assigned to and used by officials or employees of the Metropolitan St. Louis Police Department. The following passenger automobiles are exempted from the prohibitions on the use of Missouri state license plates contained in Section 4.13.010:

A. One automobile assigned to the Mayor of the City for his personal use;

B. One automobile assigned to the Comptroller of the City for his personal use;

C. One automobile assigned to the President of the Board of Aldermen for his personal use; and

D. Such other automobiles as may be specifically designated by the Board of Aldermen by resolution upon the recommendation of the Board of Estimate and Apportionment.

Any such resolution shall clearly identify the automobile or automobiles for which Missouri state license plates are sought, the person or persons who will use such automobile or automobiles and the conditions of such use and shall justify the need for Missouri state license plates for each such automobile. (1994 C., § 4.13.020; Ord. No. 68716, § 1, 7-13-2010)

4.13.030 Identification of City automobiles—Required.

No official or employee of the City shall drive or use, or allow or cause to be driven or used, any passenger automobile owned by the City which is not clearly identified as being a City-owned automobile except for those automobiles which are specifically exempted from this prohibition by the provisions of Section 4.13.040. The clear identification of City-owned automobiles required by this section shall include a sign painted on each side of each such automobile which shall include the words "City of St. Louis" and an identification number which is unique to each individual automobile. Such words and numbers shall be printed with letters and numerals which are at least two and one-half inches high. (1994 C., § 4.13.030; Ord. No. 68716, § 1, 7-13-2010)

4.13.040 Identification of City automobiles—Exemptions.

The requirement of the clear identification of City-owned automobiles contained in Section 4.13.030 shall not apply to passenger automobiles assigned to and used by officials or employees of the Metropolitan St. Louis Police Department. The following passenger automobiles are exempted from the requirement of clear identification of City-owned automobiles contained in Section 4.13.030:

A. One automobile assigned to the Mayor of the City for his personal use;

B. One automobile assigned to the Comptroller of the City for his personal use;

C. One automobile assigned to the President of the Board of Aldermen of the City for his personal use; and

D. Such other automobiles as may be specifically designated by the Board of Aldermen by resolution upon the recommendation of the Board of Estimate and Apportionment.

Any such resolution shall clearly identify the automobile or automobiles for which an exemption from this requirement is sought, the person or persons who will use such automobile or automobiles and the conditions of such use and shall justify the need for the requested exemption. (1994 C., § 4.13.040; Ord. No. 68716, § 1, 7-13-2010)

4.13.050 Use of City motor vehicles.

No official or employee of the City shall possess or use any motor vehicle owned or leased by the City except for those officials or employees who are specifically designated by resolution of the Board of Aldermen, upon the recommendation of the Board of Estimate and Apportionment. Any such resolution shall clearly identify the person who will use such motor vehicle, their title, their job classification, the conditions of such use, and shall justify the need for such use. (1994 C., § 4.13.050; Ord. No. 68716, § 1, 7-13-2010)

4.13.060 Motor vehicle records.

The office of the Comptroller shall maintain all records generated by the use of any motor vehicle owned or leased by the City and, with the exception of the drivers' license number and address of the person assigned to the City-owned or -leased motor vehicle, shall make such records available for public inspection upon reasonable notice to inspect. The Comptroller may charge a reasonable fee for the actual cost of preparation and duplication of these records whenever copies of said records are requested. (1994 C., § 4.13.060; Ord. No. 68716, § 1, 7-13-2010)

4.13.070 Reimbursement of personal motor vehicle usage for official City business.

No official or employee of the City shall be reimbursed for personal motor vehicle usage costs that pertain to or relate to official City business unless such reimbursement is specifically approved by resolution of the Board of Aldermen, upon the recommendation and approval of the Board of Estimate and Apportionment. Any such resolution shall clearly identify the person who used their personal motor vehicle for official City business, the nature of the usage, and the exact cost amount to be reimbursed. (1994 C., § 4.13.070; Ord. No. 68716, § 1, 7-13-2010)

4.13.080 Adoption of a City Motor Vehicle Policy Manual Consistent with Chapter 4.13.

The Board of Aldermen shall adopt by resolution a City Vehicle Policy Manual Consistent with this Chapter 4.13, upon the recommendation and approval of the Board of Estimate and Apportionment. (1994 C., § 4.13.080; Ord. No. 68716, § 1, 7-13-2010)

Chapter 4.14

FIDELITY BONDS

Bonds of various officers, see § 3.26.010.

Sections:

4.14.010 Bond required.
4.14.020 Approval of bonds—Surety.
4.14.030 Renewals.
4.14.040 Blanket bonding.
4.14.050 Order to renew—Failure.
4.14.060 New bond.
4.14.070 Petition for discharge—Allowed.
4.14.080 Petition for discharge—Contents—To whom addressed.
4.14.090 Petition for discharge—Notification of principal.
4.14.100 Petition for discharge—Publication of notice.
4.14.110 Petition for discharge—Examination—New bond.
4.14.120 Effect of new bond.
4.14.130 Quarterly examination—Report.

4.14.010 Bond required.

All officers and employees of the City, not otherwise required by the Charter or an ordinance of the City to give bond, whose duties include the handling of funds of the City, shall execute bond to the City in amounts as the Comptroller shall find necessary to fully protect the City, in form as approved by the City Counselor and with surety as approved by the Comptroller. All premiums on bonds shall be paid by the City. (1948 C., Ch. 47, § 4; 1960 C., § 43.010; 1994 C., § 4.14.010.)

For bonds of various officers, see § 3.26.010.

4.14.020 Approval of bonds—Surety.

Any bond required by the Charter or any amendments thereto or existing or future ordinances to be given by any officer or employee of the City for the faithful performance of duties or to protect the City from loss shall be approved as to its sufficiency by the Comptroller, except in the case of the bond of the Comptroller which shall be approved as to its sufficiency by the Mayor. The surety on each bond shall be either a corporation engaged in the business of furnishing bonds and authorized to transact business in the state or the sureties on the bond shall be not less than two residents of this City owning unencumbered real estate located within the City of ample value above all

debts and exemptions to satisfy the bond. (1948 C., Ch. 23, § 57; 1960 C., § 28.010; 1994 C., § 4.14.020.)

Charter:

Art. VIII § 4 When official bond required; payment of premiums failure to qualify

Art. XXV § 4 Approval of official bonds; faithful performance required

City Counselor Ops.: 9524

McQuillin:

12.98 Bonds of officers

4.14.030 Renewals.

The Comptroller shall arrange with sureties under Section 4.14.020 for the continuance of their security on bonds by automatic annual renewal thereof so long as the officer or employee bonded thereby retains the office or position. (1948 C., Ch. 23, § 58; 1960 C., § 28.020; 1994 C., § 4.14.030.)

City Counselor Ops.: 9524

4.14.040 Blanket bonding.

The Comptroller may arrange for the bonding of the various offices or positions, irrespective of the persons holding the same, under the form of a blanket policy, the same to be renewable from year to year by payment of renewal premiums and to be subject to such alterations from time to time by arrangements negotiated by the Comptroller as the Comptroller may in his discretion deem necessary. (1948 C., Ch. 23, § 59; 1960 C., § 28.030; 1994 C., § 4.14.040.)

4.14.050 Order to renew—Failure.

The Comptroller shall have power to order the renewal of any bond held by the City from any person in pursuance of any ordinance, whenever in his judgment the bond has become, or is likely to become, impaired through any cause whatsoever. A failure to renew the bond by the parties interested, to the satisfaction of the Comptroller, within fifteen days after the date of notification to renew, shall operate to work a forfeiture of all the rights and privileges granted by the City under the ordinance of which the bond forms a part. (1948 C., Ch. 23, § 60; 1960 C., § 28.040; 1994 C., § 4.14.050.)

4.14.060 New bond.

Whenever any surety of any officer or employee of the City dies, moves from the City, or becomes insolvent or the Mayor shall have reason to believe the security of the bond of any officer is, or is likely to become, insufficient, the Mayor shall require the officer or employee at a time to be appointed, to show cause why a new bond shall not be given, and unless cause be shown, the officer or employee shall be required within twenty days to enter into a new bond, and in default thereof the office or employment shall be vacant and shall be so declared by the Mayor by proclamation. (1948 C., Ch. 47, § 31; 1960 C., § 28.050; 1994 C., § 4.14.060.)

Charter:

Art. XXV § 5 When additional official bond required

4.14.070 Petition for discharge—Allowed.

Any person now or hereafter bound as surety in any official bond to the City may present a petition praying for discharge from liability as surety for any subsequent breach of the conditions of the bond. (1948 C., Ch. 47, § 32; 1960 C., § 28.060; 1994 C., § 4.14.070.)

4.14.080 Petition for discharge—Contents—To whom addressed.

The petition shall set forth the facts upon which the application for discharge is founded and shall be verified by the affidavit of the petitioner or someone on behalf of the petitioner. This petition shall be addressed to the officer authorized by law to approve bonds of the kind mentioned in the petition. (1948 C., Ch. 47, § 33; 1960 C., § 28.070; 1994 C., § 4.14.080.)

4.14.090 Petition for discharge—Notification of principal.

A notice in writing of intended application, together with a copy of the petition, shall be personally served on the principal in the bond at least fifteen days before making the application, unless the principal shall in writing waive the service of notice. (1948 C., Ch. 47, § 34; 1960 C., § 28.080; 1994 C., § 4.14.090.)

4.14.100 Petition for discharge—Publication of notice.

If the principal in the bond shall be absent from the state for the period of six months, publication of the notice and petition in the newspapers doing the City publishing once a week for four successive weeks shall be sufficient service of the notice. (1948 C., Ch. 47, § 35; 1960 C., § 28.090; 1994 C., § 4.14.100.)

4.14.110 Petition for discharge—Examination—New bond.

The officer to whom the petition is addressed shall consider the application and may, in his discretion, on

examination thereof, make an order requiring the principal in the bond to give a new bond in lieu of the old bond, with security for the performance of the conditions named in the bond. (1948 C., Ch. 47, § 36; 1960 C., § 28.100; 1994 C., § 4.14.110.)

4.14.120 Effect of new bond.

When a new bond is taken, approved and filed, it shall immediately operate as a discharge of the surety in the former bond from all liability arising from any subsequent breach of the conditions of the former bond. The surety on the former bond shall thenceforth be liable on the former bond only for the breaches thereof as shall have happened prior to the taking, approval and filing of the new bond. (1948 C., Ch. 47, § 37; 1960 C., § 28.110; 1994 C., § 4.14.120.)

4.14.130 Quarterly examination—Report.

It is the duty of the Comptroller on the first Mondays of January, April, July and October of each year carefully to examine all official and other bonds to the City and within ten days after each such first Mondays to report in writing to the Mayor any and all bonds which are not in due form of law or of whose sufficiency there is any reasonable doubt. (1948 C., Ch. 47, § 38; 1960 C., § 28.120; 1994 C., § 4.14.130.)

Chapter 4.15

PERSONNEL RECORDS

Sections:

4.15.010 Individually identifiable records closed to public.

4.15.020 Public official access—Employee's access to own records.

4.15.030 Penalty for violation.

4.15.010 Individually identifiable records closed to public.

Individually identifiable personnel records pertaining to officers and employees in the City's service shall be deemed records closed to the public, except that records pertaining to the names, positions, salaries, and lengths of service of officers and employees in the City's service shall not be closed. (1994 C., § 4.15.010; Ord. No. 61952, § 1, 1990.)

4.15.020 Public official access—Employee's access to own records.

A. Records that are closed to the public shall also be closed to other City employees and officials, except to the extent that access to those records are required by a public official or his or her designee in executing his or her lawful official duties.

B. Additionally, nothing in this chapter shall prevent an employee or official from viewing his or her own individually identifiable personnel record, and indeed it shall be his or her right to view such record, at reasonable conditions as provided by the custodian of such record. (1994 C., § 4.15.020; Ord. No. 61952, § 2, 1990.)

4.15.030 Penalty for violation.

Any willful violation of any of the provisions of this chapter shall constitute cause for a fine of not more than five hundred dollars. (1994 C., § 4.15.030; Ord. No. 61952, § 3, 1990.)

Chapter 4.16

CITY EMPLOYEES RETIREMENT SYSTEM

Prior history: Ords. 50430, 52407, 64455, 64833, 64905, 64942, 64954, 65065, 65070, 65666, 65734 and 66230; prior code §§ 59-010—59-170

Constitution:

Art. 6 § 25 Pensions and retirement plans authorized.

City Counselor Ops: 8538, 8551, 8568, 8649, 8719, 8721, 8731, 8737, 10121.

Cases:

Mere removal of employee from payroll would not constitute automatic termination of retirement system membership. *White v. Poelker,* 521 S.W. 2d 31 (1975).

Plaintiff, a court reporter for the Circuit Court of St. Louis, was a member of the Missouri State Employees Retirement System and therefore not eligible for benefits under the city retirement system, notwithstanding that for more than twelve years deductions were mistakenly made from the city portion of her salary for the city retirement system. *Bresnahan v. Bass,* 562 S.W. 2d 385 (1978).

McQuillin:

12141 *et seq.* Pension laws.

Sections:

4.16.010 Definitions.

4.16.020 Membership.

4.16.030 Creditable service.

4.16.040 Retirement.

4.16.050 Death benefits.

4.16.060 General distribution rules.

4.16.070 Member contributions.

4.16.080 Employer contributions.

4.16.090 Deferred retirement option program.

4.16.100 Fund.
4.16.110 Board of Trustees.
4.16.120 Actuary.
4.16.130 Miscellaneous.

4.16.010 Definitions.

The following words and phrases as used in this chapter shall have the following meaning, unless a different meaning is plainly required by the context.

"Accumulated contributions" means the sum of all amounts deducted from the compensation of a member and credited to the fund together with interest thereon.

"Actuarial equivalent" means a benefit of equal value when computed upon the basis of such mortality tables and interest rate as shall be adopted by the Board of Trustees.

"Beneficiary" means any person entitled to or in receipt of a benefit from the Retirement System as a result of the death of a member or a retiree.

"Benefit compensation base" means the amount of annual compensation with respect to which old age and survivor's insurance benefits would be provided to the member under the Social Security Act in effect on the date the benefit compensation base is determined. The benefit compensation base shall be computed for each member on the earlier to occur of (a) his or her normal service retirement date, or (b) the date of termination of his or her employment. The benefit compensation base shall be determined as though for each year prior to and including the year of computation the member's annual compensation was at least equal to the maximum amount of earnings subject to tax in each year under the Federal Insurance Contributions Act, and for each year after the date of computation until the member's normal service retirement date, his or her annual compensation is equal to the maximum amount of earnings subject to tax in the year of computation under the Federal Insurance Contributions Act.

"Board of trustees" means the board provided for in this chapter to establish policy and rules for the administration of the retirement system.

"City" means the City of St. Louis, Missouri.

"Compensation" means the basic wage or salary paid an employee for any period excluding bonuses, any sick pay paid upon retirement by the employer, overtime pay, expense allowances and other extraordinary compensation. Compensation for a member shall not exceed the limitation in effect under IRS Section 401(a)(17). Such amount shall be adjusted at such time and in such manner as permitted under IRC Section 415(d). The limits of IRC Section 401(a)(17) shall apply to an employee who becomes a member on or after October 1, 1996. Compensation for periods of qualified military service after December 12, 1994 or while a member is receiving worker's compensation benefits shall be at the rate of compensation the member received at the time he entered qualified military service or commenced receiving worker's compensation benefits, increased for compensation adjustments which are universally applied to all employees who are in the same employment classification as the member during the member's period of absence on account of qualified military service or an injury for which worker's compensation is awarded.

"Creditable service" means the period of service which is creditable in accordance with Section 4.16.030.

"DROP" means the deferred retirement option program provided for in this chapter.

"Early service retirement date" means the date of actual retirement of a member pursuant to Section 4.16.040.C.

"Employee" means any appointive or elective employee of an employer, including a member of the Board of Aldermen of the City, whether performing City or county functions, except those employees remunerated at hourly rates, per performance rates, or employees in limited term, temporary or training positions as determined by the Department of Personnel of the City, members of other retirement systems established by ordinance and/or state statute or part-time employees on less than a half-time basis. In case of doubt as to whether any person is an employee within the meaning of this chapter, the decision of the Board of Trustees shall be final.

"Employer" means the City as a city and as a county, any public utility owned by the City, the retirement system, or any administrative board or board of control organized and existing under the general laws of the State of Missouri for the purpose of furnishing library services or maintaining and operating an art museum or a zoological park or similar public service to the inhabitants of the City, which elects to participate in this retirement system.

Final Average Compensation.

A. "Final average compensation" is equal to one-half of the sum of Subsections A.1 and 2 below:

1. The annual compensation (as that term is defined in this Section 4.16.010) received by a member (as

that term is defined in Section 4.16.130 of this chapter) for the two (2) consecutive years of creditable service (as that term is defined in this Section 4.16.010 and as modified by Section Two of Ordinance 68712 (Section 4.16.030.A of this chapter) in which the highest compensation was received preceding the termination of his or her employment; and

2. The member's sick leave balance as accrued on the effective date of the ordinance codified in this section, less the sum of the following: (a) sick leave hours used by the member as for sick leave purposes prior to retirement; (b) sick leave hours paid to the member upon termination of his or her employment; and (c) sick leave hours considered as creditable service for the purpose of determining eligibility for and/or calculation of retirement benefits. Notwithstanding the foregoing, the sick leave balance used in calculating final average compensation shall not exceed twenty-five percent (25%) of a member's total sick leave balance on the effective date of this chapter, less sick leave hours used by the member for sick leave purposes prior to retirement.

B. If a member has less than two (2) consecutive years of creditable service his or her final average compensation shall be equal to the sum of Subsections 1 and 2 below, divided by Subsection 3 below and then multiplied by Subsection 4 below:

1. The sum of monthly compensation received by the member for each consecutive month of creditable service immediately preceding the termination of his or her employment; and

2. The member's sick leave balance on the effective date of the ordinance codified in this section less the sum of the following: (a) sick leave hours used by the member as for sick leave purposes prior to retirement; (b) sick leave hours paid to the member upon termination of his/her employment; and (c) less sick leave hours considered as creditable service for the purpose of determining eligibility for and /or calculation of retirement benefits. Notwithstanding the foregoing, the sick leave balance used in calculating final average compensation shall not exceed twenty-five percent (25%) of a member's total sick leave balance on the effective date of this chapter, less sick leave hours used by the member for sick leave purposes prior to retirement; and

3. The number of consecutive months of creditable service immediately preceding the termination of his or her employment; and

4. Twelve (12).

C. Notwithstanding anything to the contrary contained herein, for purposes of the calculations set forth in this section, a member's sick leave balance at the time of retirement shall not exceed the member's sick leave balance on the effective date of the ordinance codified in this chapter.

D. Notwithstanding anything to the contrary contained herein, no future member hired by an employer (as that term is defined in this Section 4.16.010) after the effective date of the ordinance codified in this chapter shall have any portion of his or her sick leave balance or medical leave balance used in determining such future member's final average compensation.

E. Notwithstanding anything to the contrary contained herein, if a member does not make written application for retirement prior to termination of employment and does not retire within 90 days after said member terminates employment, the sick leave balance or medical leave balance shall not be used to increase such member's final average compensation.

"IRC" means the Internal Revenue Code of 1986, as amended.

"Medical board" means the board of physicians provided for in this chapter.

"Member" means a member of the retirement system as defined by Section 4.16.020.

"Normal service retirement date" means the first day of the month following a member's or former member's sixty-fifth birthday, provided the member or former member has vested benefits.

"Operative date" means the date this retirement system becomes operative for an employer; and, as to the City as an employer, the operative date shall be April 1, 1960.

"Pension" means the annual payments for life or as otherwise provided for by this chapter which shall be payable in equal monthly installments to a retiree or to a beneficiary, including a full monthly payment for the month in which the death of the retiree or beneficiary occurs.

"Plan year" means the annual accounting period for the retirement system as determined by the Board of Trustees.

"Qualified military service" means service in the uniformed services as defined in IRC Section 414(u)(5).

"Retiree" means a member who has retired and is entitled to benefits from the retirement system.

"Retirement system" means the employees retirement system of the City as authorized under an act of the 70th General Assembly of the State of Missouri known as Senate Bill 329, and as set forth in this chapter.

"Service retirement date" means the date of actual retirement of a member for reasons other than disability.

"Spouse" means the lawful spouse of a member at the date of the member's retirement or at the date of the member's death if the member dies before retirement.

"Terminated member" means a former member with a vested benefit who is no longer an employee of an employer.

"Treasury regulations" means federal income tax regulations as promulgated by the Secretary of Treasury or his or her delegate, as amended from time to time. (1994 C., § 4.16.010; Ord. No. 68712, § 1, 7-9-2010; Ord. No. 66511, § 4, 2004.)

4.16.020 Membership.

A. *Employment.* All employees shall become members upon commencement of employment with an employer.

B. *Enrollment Information.* All employees shall provide such enrollment information as required by the Secretary of the Board of Trustees to qualify for membership, in addition to meeting other provisions of this section.

C. *Cessation.* Membership ceases on termination of employment by resignation, dismissal, discharge, death, retirement, layoff or if for any other reason, except qualified military service, if the employee is not on the payroll of an employer for more than twelve (12) consecutive months. (1994 C., § 4.16.020; Ord. No. 66511, § 5, 2004.)

4.16.030 Creditable service.

A. *Calculation.* The years of creditable service of a member shall be the number of years and full calendar months of service during which he or she receives compensation from the first day of each employment with an employer until his or her employment is terminated, subject to the provisions of this section. The years of creditable service of an employee (as that term is defined in Section 4.16.010 of this chapter) hired after the operative date (as that term is defined in Section 4.16.010 of this chapter) who had attained the age of sixty (60) years at initial employment shall be the number of years and completed months of service during which he or she receives compensation from October 1, 1988, and hereafter, from the first day on or after October 1, 1988, of the beginning of each employment with an employer until his or her employment is terminated. No creditable service shall be granted for any period of employment before October 1, 1988, after the calendar month in which the member attains age seventy (70). No creditable service for prior employment shall be granted an employee who becomes a member after April 1, 1960, unless he or she was employed by an employer on April 1, 1960. A member's sick leave balance as accrued on the effective date of the ordinance codified in this chapter, less the sum of Subsections 1, 2 and 3 below, shall be considered as additional creditable service in determining eligibility for and calculation of retirement benefits under any provision of Ordinance 66511, as amended:

1. Sick leave hours used by the member for sick leave purposes prior to retirement;

2. Sick leave hours paid to the member upon termination of his or her employment; and

3. Sick leave hours used in determining final average compensation.

Notwithstanding anything to the contrary contained herein, for purposes of the calculations set forth in this section, a member's sick leave balance at the time of retirement shall not exceed the member's sick leave balance on the effective date of the ordinance codified in this chapter.

Notwithstanding anything to the contrary contained herein, no future member hired by an employer after the effective date of this chapter shall have any portion of his or her sick leave balance or medical leave balance used in determining such future member's creditable service.

Notwithstanding anything to the contrary contained herein, if a member does not make written application for retirement prior to termination of employment and does not retire within 90 days after said member terminates employment, the sick leave balance or medical leave balance shall not be used to increase such member's creditable service.

B. *Reemployment.*

1. If a member resumes employment with an employer within two years after his or her employment is terminated, his or her creditable service as of date of termination shall be restored.

2. Except as provided in Subsection B.3 of this section, if a member resumes employment with an

employer more than two years after his or her employment is terminated, he or she may request his or her creditable service as of the date of his termination be restored. Using accepted actuarial methods, the retirement system shall determine the cost of any change in the benefit obligation to the member to be incurred by the retirement system for creditable service being restored to a member and adjust the member's amount of creditable service to reflect said cost. A member may elect to purchase any period of creditable service not restored as a result of the above reduction. The cost shall be determined using accepted actuarial methods by the retirement system. Payment in full of an amount due by an individual electing to purchase creditable service shall be made over a period not to exceed two years, measured from the date of election, or prior to the effective date of retirement benefit payments to the member, whichever is earlier, with interest compounded annually at the actuarially assumed rate of the retirement system. If payment in full is not made within this prescribed time period, any partial payments made by the member because of the election shall be refunded, and no creditable service shall be allowed by the retirement system as a result of the partial payments.

3. Any member who resumes employment with an employer after his or her employment is terminated shall receive creditable service for every full calendar month of prior service as a member upon member's accrual of five (5) years of continuous creditable service following reemployment.

C. *Absence Without Pay.* Creditable service to date of absence shall not be forfeited by reason of any absence without pay due to leave granted by an employer for up to a one-year period, provided the employee returns to active service with his or her employer at the expiration of his or her leave.

D. *Vested Benefit.* A member with at least five (5) years of creditable service will have a vested benefit.

E. *Rules and Regulations.* The Board of Trustees shall fix and determine by proper rules and regulations how much service in any year is equivalent to one year of creditable service, but in no event shall more than one year of service be creditable for all service in one calendar year, nor shall the Board of Trustees allow credit as service for any period of more than one month's duration during which the member was absent without pay except as provided otherwise in this section.

F. *Military Service.* Effective December 12, 1994, absence from employment with an "employer" (as defined in Section 4.16.010 of this chapter) because of "qualified military service" (as defined in Section 4.16.010 of this chapter) shall be considered a leave of absence granted by the employer, provided the employee (as defined in Section 4.16.010 of this chapter) returns to active employment with his or her employer within the period of time during which he or she has reemployment rights under any applicable federal law or within 90 days from and after discharge from such military service if no federal law is applicable and such service shall be included in "creditable service" (as defined in Section 4.16.010 of this chapter). Notwithstanding any provision of law to the contrary, contributions, benefits and creditable service (as defined in Section 4.16.010 of this chapter) with respect to qualified military service will be provided in accordance with Section 414(u) of the Internal Revenue Code of 1986, as amended (the "IRC") and the federal Uniformed Services Employment and Reemployment Rights Act of 1994, as amended.

Effective with respect to deaths occurring on or after January 1, 2007, while a member (as defined in Section 4.16.010 of this chapter) is performing qualified military service, to the extent required by Section 401(a)(37) of the IRC, survivors of a member, are entitled to any additional benefits that the retirement system (as defined in Section 4.16.010 of this chapter) would provide if the member had resumed employment and then died such as accelerated vesting or survivor benefits that are contingent on the member's death while employed. In any event, a deceased member's period of qualified military service must be counted for vesting purposes.

Beginning January 1, 2009, to the extent required by Section 414(u)(12) of the IRC, an employee receiving differential wage payments (as defined under Section 3401(h)(2) of the IRC) from an employer shall be treated as employed by that employer, and the differential wage payment shall be treated as compensation for purposes of applying the limits on annual additions under Section 415(c) of the IRC. This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.

G. *Termination and Reemployment.* If the employment of a member is terminated and he is employed by any employer thereafter, he shall be considered a new employee for all purposes of the retirement system except as provided by Subsection B of this section.

H. *Claim Prior to Operative Date.* Each member claiming creditable service prior to the operative date shall at the request of the Secretary of the Board of Trustees file such detailed statement as may be required to establish such claimed creditable service.

I. *Transfer of Creditable Service.* The Secretary of the Board of Trustees for the retirement system, with the approval of the Board of Trustees, is authorized to enter into cooperative agreements to transfer creditable service between the retirement system and any other retirement plan established by the State of Missouri or any political subdivision or instrumentality of the state when a member who has been employed in a position covered by one plan is employed in a position covered by another plan. The transfer of creditable service shall be in accordance with the provisions of RSMo 105.691 (2000) as amended, or as the same may from time to time be amended, or RSMo 104.1090 (2000) as amended, or as the same may from time to time be amended.

J. *Purchase of Creditable Service.* A member may, effective October 1, 2001, contribute or have transferred to the fund an amount representing his or her benefits in a plan or account qualified under IRC Sections 401(a), 403(b), 408(a) or an eligible plan under IRC Section 457(b) which is maintained by a state, political subdivision, or any agency or instrumentality of a state or political subdivision of a state. Such amount shall be utilized to purchase an additional period of creditable service determined using accepted actuarial methods by the retirement system. (1994 C., § 4.16.030; Ord. No. 69537, § 1, 9-15-2013; Ord. No. 68712, § 2, 7-9-2010; Ord. No. 67963, § 1, 2008; Ord. No. 66511, § 6, 2004.)

4.16.040 Retirement.

A. *Normal Service Retirement.*

1. *Date of Retirement.* The normal service retirement date of a member or former member with vested benefits shall be the first day of the month following his or her sixty-fifth birthday; provided, however, that a member must have completed at least five years of creditable service as of his or her normal service retirement date to be eligible for a pension benefit under this provision.

2. *Written Application.* Any member or former member may retire as of his or her normal service retirement date or as of the first day of any month thereafter upon his or her written application to the Board of Trustees not less than thirty (30) days nor more than ninety (90) days prior to such date, provided that the member has completed at least five years of creditable service as of the date of his or her application.

3. *Computation of Pension* Amount. Upon retirement on his or her normal service retirement date or thereafter, a member or former member shall receive a monthly pension beginning on the first day of the month following his or her retirement, equal to his or her number of years of creditable service and fractions thereof, multiplied by one-twelfth of the sum of:

a. 1.30% of his or her final average compensation up to the benefit compensation base; and

b. 2.05% of that part of his or her final average compensation in excess of the benefit compensation base.

B. *Rule of Eighty-Five—Pension Amount.*

1. A member of the retirement system who has satisfied the "rule of eighty-five" at date of termination of employment shall receive a monthly pension computed in the same manner as for normal service retirement, beginning on the first day of the month following his or her retirement subject to the written application provision set forth under normal service retirement.

2. A member shall be deemed to have satisfied the rule of eighty-five if the sum of his or her age and creditable service at date of termination of his or her employment is equal to or in excess of eighty-five (85).

C. *Early Service Retirement.*

1. *Early Service Retirement Date.* The early service retirement date of a member or a former member with vested benefits, shall be the first day of any month after he or she has attained age sixty (60) with at least five (5) years of creditable service, age fifty-five (55) with at least twenty (20) years of creditable service, or has completed at least thirty (30) years of creditable service at any age.

2. *Written Application.* Any member or former member, who satisfies the requirements for early retirement specified in this subsection may retire on his or her early service retirement date or on the first day of any month thereafter, upon his or her written application to the Board of Trustees not less than thirty (30) days nor more than ninety (90) days prior to such date.

3. *Computation of Early Retirement Pension.* Upon retirement because of early service retirement, the member or former member shall receive a pension, as computed in Subsection A.3 of this section, beginning on the first day of any month following his or her retire-

ment and prior to his or her normal service retirement date, reduced by one-third percent (⅓%) for each month by which the commencement of the pension precedes the member's normal service retirement date.

D. *Disability Retirement.*

1. *Eligibility and Written Application.* If a member who has completed five years of creditable service is totally disabled, as defined hereafter, prior to his or her normal service retirement date, he or she will be retired upon written application to the Board of Trustees by him or her or by his or her employer and he or she will receive a disability retirement pension. A member must file said written application within one (1) year from the date said member terminates employment due to said disability.

2. *Total Disability Defined.* A member will be considered totally disabled if the Medical Board certifies he or she is wholly prevented from engaging in any occupation for wage or profit and the Board of Trustees approves his or her application for benefits. The Medical Board will apply as a guideline standards of impairment and disability of the whole person as established by special committees of the various specialists for the American Medical Association. The degree of impairment of part or parts of the body, including mental illness, each or all in relation to the whole person, to be determined by the Medical Board.

3. *Pension Calculations.* Upon retirement for disability a member will be entitled to receive a disability retirement pension calculated as for normal service retirement using the benefit compensation base for the year of his or her termination of employment and based on his or her years of creditable service and final average compensation as of his or her last day on the payroll of the employer.

4. *Determination of Date Benefits are Payable.* The Board of Trustees, in approving the application for disability retirement, shall determine the date from which benefits are payable, which date shall be the first of the month that is not over two months prior to date of approval. No disability benefits shall be payable during any period the member is receiving compensation from his or her employer.

5. *Medical Examination.* Once each year during the first five years following the retirement of the member on a disability retirement pension and once in every three-year period thereafter, the Board of Trustees may, and upon his or her application shall, require any member who has retired because of total disability to undergo a medical examination. Such examination will be made at a place designated by the Medical Board, and by a physician or physicians designated by such Medical Board. Should such retiree refuse to submit to such medical examination, his or her pension may be discontinued until his or her withdrawal of such refusal and should his or her refusal continue for one year, all rights in and to his or her pension may be revoked by the Board of Trustees.

6. *Offset of Pension Benefits.* Any amounts which may be paid or payable by the City under the provisions of any workers' compensation or similar law to a member on account of any disability shall be offset (deducted from) and payable in lieu of any disability retirement benefits payable to said member on account of the same disability.

7. *Discontinuance of Pension.* Should the Medical Board report and certify to the Board of Trustees that a retired member receiving a disability pension, at any time before attainment of age sixty-five, is able to engage in a gainful occupation, and should the Board of Trustees concur in such report, the Board of Trustees shall direct that the disability retirement pension be discontinued. Should the Board of Trustees find that a retired member receiving a disability pension is engaged in a gainful occupation at any time before attainment of age sixty-five, the pension may be reduced or discontinued at the option of the Board of Trustees.

8. *Reemployment—Restoration of Creditable Service.* Should a retired member receiving a disability pension again become an employee, his or her disability retirement pension shall cease and he or she shall immediately become a member of the retirement system as of the date of reemployment. His or her creditable service at the time of his or her disability retirement shall be restored in full force and effect.

E. *Distribution of Interest.* The member's entire interest must be distributed over the member's life or the lives of the member and a designated "Beneficiary" (as defined in Section 4.16.010 of this chapter) or over another period under an option offered in Section 4.16.020.D of this chapter (in accordance with federal regulations). (1994 C., § 4.16.040; Ord. No. 67963, § 5, 2008; Ord. No. 66511, § 7, 2004.)

4.16.050 Death benefits.

A. *In Service Death of Member Eligible for Early Service Retirement Pension.* If the death of a member occurs after his or her early service retirement date but

prior to his or her actual retirement, his or her spouse shall receive a pension as if he or she had retired on the day of his or her death and elected benefits under the option in Subsection D.1 of this section. Such benefit must be distributed (in accordance with federal regulations) over the life of the surviving spouse, with the distributions beginning by December 31 of the calendar year following the calendar year of the member's death.

B. *In Service Death of Member Before Early Service Retirement Date.* If the death of a member occurs after completion of five (5) years of creditable service but prior to his or her early service retirement date, his or her spouse shall receive a pension on the date the deceased member would have reached his or her early service retirement date. Such pension shall be determined as if the member had reached his or her early service retirement date and elected benefits under the option in Subsection D.1 of this section. Such benefit must be distributed (in accordance with federal regulations) over the life of the surviving spouse with the distribution beginning on the date the member would have attained his or her early service retirement date.

C. *Pre-retirement Death Benefit Coverage for Spouse and Beneficiary of Terminating Member.* Within six (6) months of termination of employment, a terminated member, who has completed at least five (5) years of creditable service, may elect a joint and survivor annuity death benefit for his or her surviving spouse or ten (10) year certain and life annuity death coverage as described in Subsection D of this section. Such election shall remain in full force and effect until the date of the terminated member's death, reemployment by an employer, or revocation of such election. The retirement and survivor benefits of a terminated member who elects survivor coverage under this subsection shall be reduced by a survivor reduction percentage per year or portion thereof in which the surviving spouse or ten (10) year certain beneficiary death benefit coverage was in effect prior to the terminated member's date of death. If a terminated member fails to elect survivor coverage pursuant to this subsection, no survivor benefits shall be paid. For purposes of this subsection, "surviving spouse" shall be the spouse who was legally married to the terminated member on such terminated member's date of death and who survived such terminated member's death. Survivor benefits under this subsection shall be paid as follows:

1. If the death of such terminated member occurs after he or she would otherwise be entitled to retire under the retirement system, such member's surviving spouse, or ten (10) year certain designated beneficiary, shall receive a pension as if the terminated member had retired on the day of his or her death and elected benefits under the surviving spouse or ten (10) year certain option in Subsection D of this section, subject to the survivor reduction percentage provided in this subsection. Such benefit will begin (in accordance with federal regulations) by December 31 of the calendar year following the calendar year of the member's death.

2. If the death of a terminated member occurs prior to his or her early service retirement date, but the terminated member has a current election for survivor coverage under this subsection designating his or her surviving spouse, the surviving spouse shall receive a pension commencing (in accordance with federal regulations) on the date the deceased member would have reached his or her early service retirement date. Such pension shall be determined as if the member had reached his or her early service retirement date and elected benefits under the option in Subsection D of this section, subject to the survivor reduction provided in this subsection.

3. If the death of a terminated member occurs prior to his or her early service retirement date, but the terminated member has a current election for survivor coverage under this subsection designating a ten (10) year certain beneficiary other than his or her surviving spouse, his or her designated beneficiary shall receive a reduced pension commencing (in accordance with federal regulations) no later than December 31 of the calendar year following the calendar year of the member's death. Such pension shall be determined as if the member had reached his or her early service retirement date and elected benefits under the option in Subsection D of this section, subject to the survivor reduction provided in this subsection. Such pension shall be subject to additional reductions necessary for actuarial equivalency, determined using an interest rate of seven and seventy-five hundredths percent (7.75%).

D. *Post Retirement Death Benefit.* Upon application for service or disability retirement, a member or former member may elect, prior to his or her service retirement date or disability retirement date, to receive a reduced pension payable in one of the benefit payment forms as specified herein. Monthly payment of the retirement pension shall commence on the member's applicable retirement date and shall continue as provided below:

1. "Joint and survivor annuity" shall mean an actuarially reduced pension payable for the life of the

member and continuing on and after the member's death to his or her spouse, for such spouse's life. The amount of the monthly pension payable to the surviving spouse shall be an amount equal to one hundred percent (100%) of the monthly pension payable to the member; or

2. "Ten (10) year certain and life annuity" shall mean a monthly pension for the life of the member, but in no case less than one hundred and twenty (120) monthly payments. If the member dies before one hundred and twenty (120) monthly payments have been paid to him or her, payment of such monthly payments will continue to be paid to the member's ten (10) year certain beneficiary until a total of one hundred and twenty (120) payments have been made to the member and his or her ten (10) year certain beneficiary.

If a member elects one of the above optional benefit payment forms (in accordance with federal regulations), the amount of the retirement pension under such other form shall be the actuarial equivalent determined on the date such pension is to commence. If the member fails to make an election, no optional form of benefits will be paid. If a member dies after the required distribution of benefits has begun, the remaining portion of the member's interest must be distributed at least as rapidly as under the method of distribution before the member's death. (1994 C., § 4.16.050; Ord. No. 67963, § 6, 2008; Ord. No. 66511, § 8, 2004.)

4.16.060 General distribution rules.

A. *Rollover Distribution.*

1. Notwithstanding any other provision of this chapter, if an eligible rollover distribution becomes payable to a distributee, the distributee may elect, at the time and in the manner prescribed by the Board of Trustees, to have any of the eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

2. For purposes of this section the following terms mean:

a. Eligible Rollover Distribution. An "eligible rollover distribution" is any distribution of all or any portion of the balance to the credit of the "distributee" (as defined below), except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten (10) years or more; any distribution to the extent such distribution is required under IRC Section 401(a)(9); the portion of any distribution that is not includible in gross income; and any other distribution that is reasonably expected to total less than $200.00 during the year. Effective January 1, 2002, a portion of a distribution will not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in IRC Section 408(a) or (b) or to a qualified defined contribution plan described in IRC Section 401(a), or to a qualified plan described in IRC Section 401(a) or to a qualified plan described in IRC Section 403(a), or on or after January 1, 2007, to a qualified defined benefit plan described in IRC Section 401(a) or to an annuity contract described in IRC Section 403(b), that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible.

b. Eligible Retirement Plan. An "eligible retirement plan" is:

i. Effective January 1, 2002, a plan eligible under IRC Section 457(b) that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state that agrees to separately account for amounts transferred into the plan from the retirement system;

ii. An individual retirement account described in IRC Section 408(a);

iii. An individual retirement annuity described in IRC Section 408(b);

iv. An annuity plan described in IRC Section 403(a);

v. Effective January 1, 2002, an annuity contract described in IRC Section 403(b);

vi. A qualified trust described in IRC Section 401(a), that accepts the distributee's eligible rollover distribution; or

vii. Effective January 1, 2008, a Roth IRA described in IRC Section 408A.

c. Effective January 1, 2002, the definition of eligible rollover distribution also includes a distribution to a surviving spouse.

d. Distributee. A "distributee" includes an employee or former employee. It also includes the employee's or former employee's surviving spouse. Effective January 1, 2007, it further includes a nonspouse beneficiary who is a designated beneficiary as defined by IRC Section 401(a)(9)(E). However, a nonspouse beneficiary may rollover the distribution only to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution and the account or annuity will be treated as an "inherited" individual retirement account or annuity.

e. Direct Rollover. A "direct rollover" is a payment by the retirement system to the eligible retirement plan specified by the distributees.

3. The Board of Trustees shall, at least thirty (30) days, but not more than ninety (90) days, before making an eligible rollover distribution, provide a written explanation to the distributee in accordance with the requirements of IRC Section 402(f).

4. Such eligible rollover distribution may be made less than thirty (30) days after distributee has received the notice described in Subsection A.3 of this section, provided that:

a. The Board of Trustees clearly informs the distributee of the distributee's right to consider whether to elect a direct rollover, and if applicable, a particular distribution option, for at least thirty days after the distributee receives the notice; and

b. The distributee, after receiving the notice, affirmatively elects a distribution.

This subsection is applicable to eligible rollover distributions occurring after December 31, 1992.

B. *Cost of Living Factor.* The pension of a retiree or of his or her beneficiary, if any, including benefits payable to a member's spouse pursuant to this chapter, will be adjusted as of January 1 of each year beginning with the second January 1 following the date benefits were first payable, using the cost of living factor adopted by the Board of Trustees. The Consumers Price Index (U.S. city average index) as compiled by the U.S. Department of Labor for the twelve-month period ending September 30 of each year shall be used. The cost of living factor shall be the change in the specified Consumers Price Index since the previous adjustment in benefits, to the nearest one-tenth of one percent; provided, that if the change is an increase less than one percent the factor shall be zero, and if the change is an increase greater than five percent the factor shall be five percent. If the change is a decrease, the factor shall be zero unless the change is five percent or more. The cumulative cost of living percentage increases applied to the benefit earned by a member cannot exceed twenty-five percent. The cost of living factor may not be used if it would result in a benefit lower than the initial benefit payable to a retiree or beneficiary. The cost of living factor as of September 30 of each year shall be applied to the monthly benefit for December of such year to obtain the monthly benefit payable in the following year to Retirees and Beneficiaries who are eligible.

C. *Laws Governing Benefits.* The law as in effect the date a member ceased to be an employee shall govern as to any benefits paid thereafter to him or her or to his or her beneficiaries.

D. *Suspension of Pension.* A member who has retired under the early or normal service retirement provisions or the rule of eighty-five or under the retirement windows as provided for in Ordinance No. 60877 or Ordinance No. 61976 and again becomes an employee of an employer shall have his or her pension suspended until his or her termination of employment, except as provided in Section 4.16.130.D.

E. *Rule of 80 Retirement Window.*

1. Persons who elected to retire under the retirement window as provided for in Ordinance No. 60877 and who later return to work for an employer under said system as an employee-regular, temporary, per performance, for limited term or under contract with the employer whether designated as a consultant or otherwise, shall have their subsequent retirement benefits under this chapter reduced by the actuarial value of the lump sum payment provided for in Ordinance No. 60877. In such event subsequent retirement benefits of such person will also be reduced in accordance with Section 4.16.040.C, if applicable.

2. Persons who elected to retire under the retirement window as provided for in Ordinance No. 61976 and who later return to work for an employer under said system as an employee in a permanent position working thirty or more hours per week on a regular basis shall have their subsequent retirement benefits under the retirement system reduced by the actuarial value of the cash supplement provided for in Ordinance No. 61976. In such event, subsequent retirement benefits of any such person will also be reduced in accordance with Section 4.16.040.C, if applicable.

3. The Board of Trustees of the retirement system is hereby vested with authority to adopt such rules and procedures for the administration of the provisions of this subsection.

F. *Commencement of Benefits and Minimum Required Distributions.* Effective on and after January 1, 2003, the employees retirement system of the City of St. Louis (the "retirement system") will pay all benefits in accordance with the requirement of the Internal Revenue Code of 1986, as amended (the "IRC") Section 401(a)(9), including the incidental death benefit requirement in IRC Section 401(a)(9)(G), the regulations under that section, and the good faith compliance standard for governmental plans under the Pension Protection Act of 2006 with regard to IRC Section 401(a)(9). For this purpose, and notwithstanding any other provisions of Ordinance Number 66511, or Ordinance Number 67963, or Ordinance Number 70154, as the same may have been amended, the member's "required beginning date" is the later of (i) April 1 of the calendar year following the calendar year in which the member reaches seventy and one-half (70½) years of age, provided the member was born before July 1, 1949, or (ii) April 1 of the calendar year following the calendar year in which the member terminates employment. Notwithstanding the foregoing sentence, for those members who attain age seventy-two (72) before January 1, 2023 the member's "required beginning date" is the later of (i) April 1 of the calendar year following the calendar year in which the member reaches seventy-two (72) years of age, or (ii) April 1 of the calendar year following the calendar year in which the member terminates employment. For those members who attain age seventy-two (72) after December 31, 2022, the member's "required beginning date" is the later of (i) April 1 of the calendar year following the calendar year in which the member attains the applicable age under IRC Section 401(a)(9)(C)(v), or (ii) April 1 of the calendar year following the calendar year in which the member terminates employment. In the event a member fails to apply for retirement benefits by the applicable "required beginning date," the retirement system will use reasonable efforts to notify the member of the required minimum distribution.

G. *Annual Benefit not to Exceed Certain Amount.*

1. In no event shall a member's annual benefit paid under the retirement system exceed the amount specified in IRC Section 415(b) as adjusted for any applicable increases in the cost-of-living, as in effect on the last day of the plan year, and prior to January 1, 2003, including any increases after the member's termination of employment.

2. In no event shall the annual additions to the retirement system on behalf of the member, including the member's own contributions, exceed the lesser of:

a. One hundred percent of the member's compensation, as defined for purposes of IRC Section 415(c); or

b. Forty thousand dollars, as adjusted for increases in the cost of living.

3. For purposes of this section, IRC Section 415 is incorporated in this chapter by reference, and this subsection is effective January 1, 1984.

4. Effective on and after January 1, 2003, for purposes of applying the limits under IRC Section 415(b) (the "limit"), the following will apply:

a. A member's applicable limit will be applied to the member's annual benefit in the member's first limitation year without regard to any automatic cost of living adjustments under Subsection B of this section.

b. Thereafter, in any subsequent limitation year, a member's annual benefit, including any automatic cost of living increases under Subsection B of this section, shall be tested under the then applicable benefit limit including any adjustment to the IRC Section 415(b)(1)(A) dollar limit under IRC Section 415(d), and the regulations thereunder; but

c. In no event shall a member's benefit payable under the retirement system in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to IRC Section 415(d) and the regulations thereunder. If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity, then the preceding provisions are applied by reducing the IRC Section 415(b) limit applicable at the annuity starting date to an actuarially equivalent amount [determined using the assumptions specified in Treasury Regulation Section 1.415(b)-1(c)(2)(ii)] that takes into account the additional benefits under the form of benefit.

H. *Automatic Rollovers.* If on or after March 28, 2005, the retirement system provides for mandatory distribution of Eligible Rollover Distributions, as defined in Subsection A.2.a of this section, with a present value greater than $1,000.00, and if a member does not elect to have such distribution paid directly to an eligible retirement plan specified by member in a direct rollover or to receive the distribution directly, then the

retirement system will pay the distribution in a direct rollover to an individual retirement plan designated by the Board of Trustees of the Retirement System (the "Board of Trustees") in accordance with IRC Section 401(a)(31)(B) and IRS Notice 2005-5. (1994 C., § 4.16.060; Ord. No. 71714, § 1, 7-31-2023; Ord. No. 71161, § 1, 6-5-2020; Ord. No. 70154, § 2, 11-25-2015; Ord. No. 67963, §§ 3, 4, 8—10, 2008; Ord. No. 66511, § 9, 2004.)

4.16.070 Member contributions.

A. *Member Contribution Rates.* Each employer shall cause to be deducted from the compensation of each employee who is currently making contributions a contribution equal to three percent (3%) multiplied by the compensation received by each member on each

payroll period until the total compensation received while an employee during the calendar year equals the maximum annual taxable earnings under the federal Social Security Act as in effect on January 1 of the calendar year. Thereafter, such member shall contribute six percent (6%) multiplied by the compensation received by him or her during the remainder of the calendar year. A member may continue contribution at the rates set forth in this section in order to increase his or her pension as provided in Subsection F of this section. Members not making continuous contributions from January 15, 1978 will not be allowed to make contributions.

B. *Deductions.* The deductions provided for in this section shall be made notwithstanding that the minimum compensation provided by law for any member shall be reduced thereby. Every member shall be deemed to consent to the deduction made and provided for herein. Each employer shall certify to the Board of Trustees on each and every payroll or in such other manner that the Board of Trustees shall prescribe, the total amount deducted and such amount shall be paid into the fund and shall be credited to the member from whose salary or wages such deduction was made.

C. *Interest Credited to Accumulated Contributions.* The Board of Trustees shall annually determine the rate of interest and shall credit each member's accumulated contributions based on the largest balance on deposit for the entire calendar year.

D. *Payment to Former Members.* Should the membership of an employee be terminated by reason other than his or her death or retirement, he or she shall be paid the amount of his or her accumulated contributions upon application therefor. In the event of the death of a former member entitled to payment of his or her accumulated contributions, and prior to receiving his or her accumulated contributions, his or her accumulated contributions shall be paid to his or her designated beneficiary, or if no such beneficiary is living or designated, to the estate of the former member. No credit for interest will be allowed after the date of termination of membership.

E. *Refund of Accumulated Contributions on Retirement—Before Retirement.*

1. When an employee retires, or when a member, who hereafter elects a deferred annuity retires, the Board of Trustees shall refund to him or her, if any, his or her regular accumulated contributions and interest credited to the day of his or her retirement. This amount is in addition to any retirement benefits to which he or she is entitled.

2. An employee may elect prior to retirement to have his or her regular accumulated contributions refunded by filing a written application with the Board of Trustees. Such refund to any member shall be paid to such member in a lump sum.

3. Should the membership of an employee be terminated by reason of death, his or her accumulated contributions shall be paid to his or her designated beneficiary, or if no beneficiary is living or designated, to the estate of the deceased employee.

F. *Purchase of Additional Pension Income in Lieu of Benefits.* A member or surviving spouse having regular accumulated contributions and interest thereon due at time of retirement may elect to use this sum to purchase additional pension income based on the interest rate, mortality, and other actuarial tables adopted by the Board of Trustees, which are considered to be a part of the retirement system plan document. The life expectancy of a member or the member's spouse (as defined in Section 4.16.010 of this chapter) or beneficiary will not be recalculated after the benefits commence for purposes of determining benefits.

G. *Payment of Accumulated Contributions After Death.* If there are no further benefits otherwise payable under this chapter and the total amount of benefits received by a member, retiree or beneficiary up to the date of the death of the last survivor is less than an amount equal to the member's accumulated contributions at his or her death or at his or her actual retirement date, whichever occurs first, the difference shall be paid to the beneficiary named to receive such amount, or if no such beneficiary is living, to the estate of the person last receiving benefits, or, if no benefits have been received, to the estate of the member. (1994 C., § 4.16.070; Ord. No. 67963, § 7, 2008, Ord. No. 66511, § 10, 2004.)

4.16.080 Employer contributions.

A. *Established.* Each employer shall, on account of its employees who are members of the retirement system, pay annually into the fund an amount equal to a certain percentage of the compensation of the employees to be known as the "normal contribution" for the employer and an additional amount equal to a

percentage of the compensation of the employees to be known as the "unfunded accrued liability contribution."

B. *Normal Contribution Rate.* The Normal Contribution rate percentage shall be determined annually by the actuary from the liabilities of the Retirement System (as defined in Section 4.16.010) as shown by actuarial valuations which are based on the interest rate and such mortality and other tables as shall be adopted by the Board of Trustees (as defined in Section 4.16.010). Effective October 1, 2015 and thereafter, the normal cost percentage shall equal the normal cost amount determined under the entry age normal actuarial cost method divided by the Compensation (as defined in Section 4.16.010) of Employees (as defined in Section 4.16.010) who are Members (as defined in Subsection 16 of Section Four of Ordinance 66511), plus a percentage of Compensation to cover the administrative expenses of the Retirement System.

C. *Unfunded Accrued Liability Contributions—Determination.* The unfunded accrued liability represents the liability for normal and Member contributions not paid in the year prior to the effective date, for the increased contributions not paid in the years prior to a benefit increase and for accumulated increases/decreases in liabilities/assets caused by variation of actual plan experience from assumptions underlying past contributions. The Unfunded Accrued Liability Contribution shall be determined by the actuary annually, as a part of the actuarial valuation. Said annual Unfunded Accrued Liability Contribution shall represent the amount, expressed as a level percentage of compensation which should be contributed, by amortizing the initial unfunded accrued liability as of October 1, 2015 over twenty (20) years, with each future change in unfunded accrued liability due to actuarial gains and losses and changes in actuarial assumptions being amortized over separate twenty (20) year periods.

D. *Unfunded Accrued Liability Contribution—Percentage Rate.* The unfunded accrued liability contribution rate percentage at the discretion of the Board of Trustees may be calculated separately for each employer, and the Board of Trustees may require different contributions based on such calculations. (1994 C., § 4.16.080; Ord. No. 70154, § 1, 11-25-2015; Ord. No. 66511, § 11, 2004.)

4.16.090 Deferred retirement option program.

A. *Eligibility.* A member who is eligible for the rule of eighty-five, early or normal service retirement may elect to participate in the deferred retirement option program ("DROP") beginning on the first day of any month upon his or her application to the Board of Trustees not less than thirty (30) days nor more than ninety (90) days prior to such date.

B. *Period of Participation.* The maximum period of participation in the DROP is five (5) years.

C. *Election to Terminate Participation.* No member may elect to participate in the DROP more than once. A member who has elected to participate in the DROP may terminate such participation by giving written notice to the Board of Trustees at least thirty (30) days in advance of such termination.

D. *Creditable Service.* A member shall not earn creditable service for periods he or she participates in the DROP. Service rendered to the employer before and after such participation shall be creditable service.

E. *Continuation of Employment.* A member electing to participate in the DROP shall continue in active employment of an employer and shall not directly be paid his or her pension during such period. Notwithstanding the foregoing, a member participating in DROP shall be eligible to receive a benefit during participation in DROP, provided said member is otherwise eligible to receive a benefit as the result of the member being the surviving spouse or designated beneficiary of another member.

F. *DROP Account.* During the member's participation in the DROP, the amount of the pension which he or she would have received had he or she retired upon commencing participation in the DROP, determined in accordance with Section 4.16.040, shall be credited to the member's DROP account, which shall be established by the Board of Trustees in the member's name. A member's DROP account shall not be adjusted for any cost of living increases during the member's participation in the DROP. For a member who entered DROP prior to February 1, 2003, such member's DROP account shall be credited with interest at the actuarial valuation rate of return as determined by the Board of Trustees. For a member who entered DROP on or after February 1, 2003, interest, at the rate of return equal to the yield on the ten-year treasury bond as of the most recent plan year end, shall be credited to the member's DROP account. The interest shall be credited annually to the member's account beginning with the start of the second plan year following participation based on the account balance at the beginning of the previous plan year. If a total withdrawal occurs during a plan year,

interest will be determined pro rata for the final partial plan year of the DROP account's existence based on the beginning balance for the plan year.

G. *Termination of DROP Participation.* When a member terminates participation in the DROP:

1. The amount of the monthly pension stops being credited to the DROP account; and

2. The member resumes earning creditable service.

H. *Payment of DROP Account on Retirement.* Upon retirement, the member shall receive, in addition to his or her pension, the amount credited to his or her DROP account which shall be paid to the member in accordance with Subsection J of this section.

I. *Payment of DROP Account on Death.* If a member dies prior to termination of employment with the employer or prior to receiving payment of all amounts in the DROP account, the balance of the funds in the DROP account shall be paid in a single lump sum to the member's beneficiary or, if the beneficiary predeceases the member or there is no beneficiary, to the member's estate.

J. *Form of Payment of DROP Account.* Payment, at the election of the member, shall be made in one of the following forms:

1. A lump sum distribution of the balance of the DROP account; or

2. Substantially equal monthly installments for ten (10) years. Interest, at the rate prescribed in Subsection F of this section, shall continue to be credited to the DROP account during the installment distribution period.

In the event the balance of a member's DROP account is less than $5,000.00 at the time it is first payable or in the event a member fails to make a distribution election under this subsection, the DROP account shall be paid in a single lump sum.

K. *Status of DROP Payments.* Payment of a member's DROP account shall be in addition to payment of the member's other benefits under this chapter.

L. *Administration of DROP.* The Board of Trustees may establish rules and regulations for the administration and operation of the DROP. (1994 C., § 4.16.090; Ord. No. 66511, § 12, 2004.)

4.16.100 Fund.

A. *Established.* For the purpose of funding the benefits provided for herein, the retirement system has established the employees retirement system of the City of St. Louis savings fund (hereinafter "fund"). All employer contributions and member accumulated contributions, if applicable, shall be credited to this fund. There shall be no diversion of any portion of the assets of the fund other than for the exclusive benefit of members and their beneficiaries for the satisfaction of all liabilities with respect to members and their beneficiaries under the retirement system. The total amount payable in each year by each employer to the fund shall not be less than the normal contribution plus the unfunded accrued liability contribution. If any employer shall fail to make the required contributions when due, the Board of Trustees may reduce the benefits payable to employees and former employees of such employer until all required contributions are paid. All money provided to pay the administration expenses of the retirement system shall be credited to the fund and all necessary expenses in connection with the administration and operation of the retirement system shall be paid from the fund.

All investment income shall be put in this fund.

B. *Amounts Due and Payable.* On or before the first of April each year, the Board of Trustees shall certify to the employers the amounts which will become due and payable during the year next following to the fund. The amounts so certified shall be included by the employers in their annual budget estimate. Such amount shall be appropriated by the employers and transferred to the retirement system for the ensuing year.

C. *Employer Obligations.* The creation and maintenance of reserves in the fund as provided for, and the payment of all benefits granted under the provisions of this chapter, and expenses in connection with the administration and operation of the retirement system are hereby made obligations of the employer.

D. *Payment Vouchers.* All payments from the fund shall be made only upon vouchers signed by two persons designated by the Board of Trustees. No vouchers shall be drawn unless it shall have previously been allowed by the Board of Trustees.

E. *Investment.* The Board of Trustees of the Retirement System shall be the trustees of the fund and shall have full power to invest and reinvest the funds of the retirement system in property of any kind, real or personal, tangible or intangible, subject to the provisions of RSMo 105.687 through 105.690 (2000), as amended, and as may be amended from time to time. Subject to like terms, conditions, limitations and restrictions, the Board of Trustees shall have full power to

hold, purchase, sell assign, transfer or dispose of any of the securities and investments in the fund that shall have been or be invested, as well as of the proceeds of the investments and any money belonging to the fund. Any securities obtained by the Board of Trustees may be held in the name of a nominee in order to facilitate investments.

F. *Personal Gains by Trustee or Employee.* Except as provided, no trustee and no employee of the retirement system shall have any direct interest in the gains or profits of any investment made by the Board of Trustees, nor as such receive any pay or emolument for his services. No trustee or employee of the retirement system shall directly or indirectly for himself or as an agent in any manner use the assets of the retirement system except to make current and necessary payments as authorized by the Board of Trustees, nor shall any trustee or employee of the retirement system of the City become an endorser or surety or become in any manner an obligor for moneys loaned by or borrowed from the Board of Trustees.

G. *Allocation of Interest.* The interest and other earnings on the moneys and other assets of the retirement system shall belong to and be credited to the fund. (1994 C., § 4.16.100; Ord. No. 68379, § 1, 6-10-2009; Ord. No. 66511, § 13, 2004.)

4.16.110 Board of Trustees.

A. *Members.* There shall be a Board of Trustees of six members who shall be responsible for the establishment of policy and rules as may be necessary for the administration and operation of the retirement system. The Board shall be constituted as follows:

1. The Comptroller of the City, ex officio;

2. Two members, one of whom may be the Director of Personnel, to be appointed by the Mayor. Appointments for the two members shall be for terms of two years beginning April 1 of even-dated years.

3. Two members to be elected by and from the membership of the retirement system. Such members shall hold office for terms of two years only while members of the retirement system. The two-year terms for the two members shall begin April 1 of odd-dated years.

4. One retired member to be elected by the retirees of the retirement system. Such member shall be a retiree of the retirement system who shall reside in the City of St. Louis. Elections for this member shall be for terms of two years and shall be held in odd-dated years. Such member shall hold office for a term of two years beginning April 1 of odd-dated years.

5. The trustees serving on the Board of Trustees upon passage of the ordinance codified in this chapter shall be entitled to serve the remainder of their term, provided that they continue to meet the requirements set forth above.

6. The Board of Trustees shall promulgate and adopt rules and regulations for the election of trustees.

B. *Vacancy.* If a vacancy occurs in the office of trustee, the vacancy shall be filled for the unexpired term in the same manner as the office was previously filled.

C. *Compensation.* The trustees and Secretary shall serve without compensation from the retirement system, but they shall be reimbursed for all necessary expenses which they may incur through service on the Board of Trustees.

D. *Oath of Office.* Each trustee shall within ten days after his or her appointment or election, take an oath of office before the Register, that, so far as it devolves upon him or her, he or she will diligently and honestly administer the affairs of the Board of Trustees and that he or she will not knowingly violate or willingly permit to be violated any of the provisions of the law applicable to the retirement system. The oath shall be subscribed to by the member making it and certified by the Register and filed in the Register's Office.

E. *Voting.* Each trustee shall be entitled to one vote in the Board of Trustees. Four affirmative votes shall be necessary to adopt any motion at any meeting of the Board of Trustees.

F. *Jurisdiction.* The Board of Trustees shall have exclusive original jurisdiction in all matters relating to or affecting the fund provided for in this chapter, including, in addition to all other matters, all claims for benefits and refunds under this chapter and its action, decision or determination in any matter shall be reviewable according to law. Subject to the limitations of this chapter, the Board of Trustees shall from time to time establish rules and regulations for the administration of the fund created by this law, for the transaction of its business and for the limitation of the time within which claims may be filed.

G. *Officers—Employees.* The Board of Trustees shall elect a Chairman from its membership by majority vote and the Director of Personnel shall be Secretary of the Board of Trustees, but he may appoint an

employee of the retirement system to perform necessary duties of the position. The Board of Trustees may engage actuarial, investment, administrative and other services as required or deemed advisable to transact the business of the retirement system. The Director of Personnel shall appoint in accordance with Article XVIII of the Charter of the City all employees of the retirement system and direct their work in accordance with the policy and rules established by the Board of Trustees. The compensation of all persons so appointed shall be paid in accordance with the comprehensive compensation plan of the City. All necessary expenses of the board and the staff of the retirement system shall be paid at such rates and in such amounts as the Board of Trustees shall approve.

H. *Data.* The staff of the retirement system, under the direction of the Director of Personnel, shall keep in convenient form data as necessary for actuarial valuation of the liabilities of the retirement system and for checking the experience of the retirement system.

I. *Secretary—Transaction Report.* The Secretary of the Board of Trustees shall be responsible for keeping a record of all its proceedings. The records of the retirement system, required to be open by state or local law, shall be available for public inspection. The Secretary shall publish annually a report approved by the Board of Trustees showing the fiscal transactions of the retirement system for the preceding fiscal year, the amount of the accumulated cash and securities of the retirement system, and the last balance sheet showing the financial condition of the retirement system.

J. *IRS Filing.* The Board of Trustees is hereby authorized and directed to seek favorable determination letters from the Internal Revenue Service (the "IRS") that the Retirement System continues to be a Qualified Plan, in the time and manner the Board of Trustees deems appropriate based on IRS procedures with respect to such letters. The Board of Trustees is authorized to adopt rules or regulations and to take actions to meet any requirements imposed by the IRS as a part of this process.

K. *Medical Board.* The Board of Trustees shall designate a Medical Board to be composed of three physicians who shall arrange for and pass upon all medical examinations required under the provisions of this chapter, shall investigate all essential statements and certificates made by or on behalf of a member in connection with an application for disability retirement, and shall report in writing to the Board of Trustees its conclusions and recommendations upon all the matters referred to it.

L. *Changes in Benefit Compensation Base Table.* Whenever the maximum annual taxable earnings under the Federal Social Security Act are changed, the Board of Trustees, based upon the advice of the actuary shall change the benefit compensation base table for the purpose of maintaining the combined normal service retirement benefits under the retirement system and Social Security at the same approximate level for equal years of service and equal final average compensation.

M. *Limitations.* Except as provided in this chapter, the Board of Trustees shall have no administrative powers or duties. (1994 C., § 4.16.110; Ord. No. 70154, §§ 3, 4, 11-25-2015; Ord. No. 67963, §§ 11, 12, 2008; Ord. No. 66511, § 14, 2004.)

4.16.120 Actuary.

A. *Advisor.* The actuary shall be the technical adviser of the Board of Trustees on matters regarding the status of the fund created by this chapter and shall perform other duties as required in connection therewith. He or she shall be qualified by membership as a Fellow of the Society of Actuaries.

B. *Actuarial Investigation.* The Board of Trustees shall have made at least every five years an actuarial investigation into the mortality, service and compensation experiences of the members, retirees and beneficiaries of the retirement system and, taking into account the results of the investigation and valuation, the Board of Trustees shall establish for the retirement system mortality, service and other tables as deemed necessary.

C. *Valuation of Assets and Liabilities.* On the basis of tables as the Board of Trustees shall adopt, the actuary shall make an annual valuation of the assets and liabilities of the fund of the retirement system.

D. *Employer Contribution Rates.* On the basis of the valuation the Board of Trustees shall certify the rates of contributions payable by the employers. (1994 C., § 4.16.120; Ord. No. 66511, § 15, 2004.)

4.16.130 Miscellaneous.

A. *Assignment of Benefits.* The right of any person to a benefit, any other right accrued or accruing to any person under the provisions of this chapter and the moneys in the fund created hereunder shall not be subject to execution, garnishment, attachment or any other process whatsoever, and shall be unassignable except as specifically provided in this chapter or by

state or federal law. The Board of Trustees in its discretion may terminate any benefit in event of execution, garnishment, attachment, other process or assignment.

B. *Correction of Errors.* The Board of Trustees may cancel or reduce the benefits of any person who shall make any false statement, or shall falsify or permit to be falsified any record or records in any attempt to defraud this retirement system. Should any change or error in records result in any member or beneficiary receiving from the retirement system more or less than he or she should have been entitled to receive had the records been correct, the Board of Trustees shall correct the error, and as far as practicable, shall adjust the payments in such a manner that the actuarial equivalent of the benefit to which the member or beneficiary was correctly entitled, shall be paid.

C. *Special Consultants to Retirement System.*

1. Any retiree who is receiving benefits as a result of retirement taken prior to October 14, 1977, and any person who is receiving benefits as a result of death of any retiree, and any member of the retirement system who ceased to be a member prior to October 14, 1977 and has vested retirement benefits, shall upon application to the Board of Trustees, be engaged by the Board of Trustees as a special consultant on the problems of retirement, aging and other matters of concern to the retirement system, and are to be available to give opinions, orally or in writing, upon request of the Board of Trustees.

Upon acceptance of such application the applicant shall have the option of:

a. Securing a refund to applicant of retiree's regular accumulated contributions with interest at date of retirement of retiree or at date of leaving service with an employer for those who have vested retirement benefits.

b. An increase of monthly benefits to applicant based on the actuarial benefit due computed on the value of retiree's regular accumulated contributions with interest at date of retirement of retiree or, in the case of a member who left the service and had vested retirement benefits, at date of separation from service. The value of the services requested in return for such compensation shall not exceed the amount of such compensation.

The employment provided for by this subsection shall in no way affect any person's eligibility for retirement benefits or in any way have the effect of reducing benefits.

D. *Retiree Holding Elective Office—Benefits to Be Continued.* Retirees of the retirement system who subsequent to retirement are elected to a City office shall have a continuation of all their retirement benefits as well as other emoluments provided by law for their public office, notwithstanding any other contrary provision of the said retirement system.

E. *Retired Members Designed as Advisors.*

1. Any retiree who applied for and was granted retirement status by the retirement system prior to November 3, 1992 and who (1) was employed by an employer a total of at least thirty-five (35) years at the time or retirement, or (2) enjoyed at the time of retirement a service record greater than the thirty-five (35) years then used to cap retirement benefits, or the eligible surviving spouse of said retiree, shall, upon application, be designated as an advisor to the retirement system for the remainder of the retiree's or eligible surviving spouse's life on the problems of retirement, aging, and other related matters and shall give an opinion on such matters as requested by the Board of Trustees.

2. For the additional service as advisor under Subsection E.1 of this section each retiree or eligible surviving spouse shall receive an increase of monthly benefits based upon the retiree's actuarial benefit due on the number of years of creditable service over 35 years.

3. The additional services provided for by this subsection shall in no way affect any person's eligibility for retirement benefits or in any way have the effect of reducing benefits.

F. *Additional Payments to Consultants.* The Board of Trustees is directed to retain as a special consultant any current or future retiree with twelve (12) years or more of creditable service who is entitled to receive a monthly benefit from the retirement system of less than two hundred dollars ($200.00) or any person receiving or who in the future is entitled to receive a monthly benefit from the retirement system, as the result of the death of a retiree with twelve (12) years or more of creditable service, who is entitled to receive a monthly benefit from the retirement system of less than two hundred dollars ($200.00) and to monthly pay such retiree or person, at the time their benefits from the retirement system are paid, the difference between two hundred dollars ($200.00) and their respective monthly benefit from the retirement system as compensation for being a consultant to the Board of Trustees on problems of retirement, aging or other matters of concern

to the retirement system. The payment of compensation to a retiree or person pursuant to this subsection shall cease at the time no further benefits are payable to such retiree or person from the retirement system.

G. *Termination of System.* Upon termination of the retirement system the accrued benefit of each member as of the date of such termination shall be nonforfeitable. in the event of such termination, each such member shall have recourse toward satisfaction of his nonforfeitable rights to his accrued benefit. Further, in no event shall a member's accumulated contributions be forfeited.

H. *Medical Coverage.*

1. The City is hereby authorized to devise and establish by contract or otherwise a medical coverage plan(s) for retirees of the retirement system and their dependents. The Director of Personnel shall develop and administer programs for such coverage.

2. The Director of Personnel, with the concurrence of the Board of Trustees, is authorized to make deductions from the monthly pension benefit of retirees, at the retiree's request, for medical coverage as the City may make available.

3. The Director of Personnel, with the concurrence of the Board of Trustees, is authorized to make deductions from the monthly pension benefit of retirees, at the retiree's request, for medical coverage as may be offered through an association of retirees. Nothing, however, shall require the Director of Personnel or the Board of Trustees to authorize and make such deductions for any association or coverage.

I. *Forfeitures.* As provided in IRC Section 401(a)(8), forfeitures of benefits arising from a severance of employment, death, or for any other reason, must not be applied to increase the benefits any "Member" (as defined in Section 4.16.010 of this chapter) would otherwise receive from Employees Retirement System of the City of St. Louis (the "Retirement System"). However forfeitures may be used to reduce administrative expenses and fund currently existing benefits. (1994 C., § 4.16.130; Ord. No. 67963, § 2, 2008; Ord. No. 66511, § 16, 2004.)

Chapter 4.18

FIREMEN'S RETIREMENT SYSTEM

Prior history: Ords. 46927, 48174, 49623, 52218, 55177, 56444; 1948 C. Ch. 25

City Counselor Ops.: 7955, 8031, 8035, 8048, 8060, 8069, 8165, 8243, 8245, 8550, 8570, 8642, 9108, 9109, 9306

Cases:

City lawfully repealed prior firemen's retirement plan, freezing vested benefits, and adopted a new plan to decrease costs in the future. *Firemen's Retirement System v. City of St. Louis*, 22nd Cir. Nos. 1222-CC02916/1322-CC00006, aff'd mem., 451 S.W.3d 714 (Mo.App.E.D. 2014).

Sections:

4.18.010	**Definitions.**
4.18.015	**Created.**
4.18.020	**Membership—Exclusive.**
4.18.025	**Membership—Absence.**
4.18.030	**Creditable service—Filing statement.**
4.18.035	**Creditable service—Year equivalent.**
4.18.040	**Creditable service—Verification.**
4.18.045	**Creditable service—Prior service.**
4.18.050	**Creditable service—Retirement base.**
4.18.055	**Board of Trustees—Composition—Vacancy—Compensation—Oath—Votes.**
4.18.060	**Board of Trustees—Jurisdiction.**
4.18.060B	**Reserved.**
4.18.065	**Board of Trustees—Officers—Employees.**
4.18.070	**Board of Trustees—Data for actuarial valuation.**
4.18.080	**Board of Trustees—Records—Reports.**
4.18.085	**Legal Advisor.**
4.18.090	**Medical Board.**
4.18.095	**Actuary.**
4.18.100	**Actuarial investigation and tables.**
4.18.105	**Annual valuation of funds.**
4.18.110	**Contribution rates.**
4.18.115	**Retirement—By Board of Trustees.**
4.18.120	**Retirement—Written application after twenty-five years of service—Compulsory retirement—Seventy percent requirement.**
4.18.125	**Consumer Price Index increase.**

4.18.130 Service retirement allowance.
4.18.131 DROP program.
4.18.132 Benefit increases—Funding.
4.18.135 Resigned members leaving contributions in system.
4.18.140 Credit for service in armed forces during war.
4.18.145 Ordinary disability allowance—Application.
4.18.150 Ordinary disability allowance—Computation.
4.18.155 Accidental disability allowance—Application.
4.18.157 Accidental disability allowance—Amount.
4.18.160 Accidental disability allowance—Computation.
4.18.165 Increases in allowances.
4.18.170 Medical exams for continuance of disability allowances.
4.18.175 Adjustment of disability allowances.
4.18.180 Reinstatement of disabled members.
4.18.185 Death benefits—Retired members or members on disability allowance.
4.18.195 Death benefits—Accidental death in service.
4.18.200 Death benefits—Resigned member.
4.18.201 Death benefits—Funeral expenses.
4.18.205 Death benefits—Result of accident while on duty.
4.18.207 Special consultants on problems of retirement.
4.18.208 Special advisors to Retirement System.
4.18.209 Special advisor to Retirement System—Staggered refunds.
4.18.210 Early withdrawal of funds.
4.18.215 Payment of difference between benefits paid and accumulated contributions.
4.18.220 Members covered under this chapter.
4.18.225 Funds—Investments.
4.18.226 Funds—Use of representative to acquire and dispose of investments.
4.18.230 Funds—Interest rates.
4.18.235 Funds—Custodian—Vouchers.
4.18.240 Funds—Cash on hand—Deposits.
4.18.245 Funds—Board and employees restricted on gains.
4.18.250 Funds—Enumerated.
4.18.255 Members' savings fund.
4.18.260 Member contribution—Percentage.
4.18.265 Member contribution—Consent—Crediting individual account.
4.18.270 Member contribution—Refunds, additional benefits.
4.18.275 Member contribution—Cash payment or note.
4.18.280 Benefit reserve fund.
4.18.285 General reserve fund—City contributions.
4.18.290 General reserve fund—Contributions and payments.
4.18.295 General reserve fund—Normal contribution rate.
4.18.300 General reserve fund—Accrued liability contribution rate.
4.18.305 General reserve fund—Amounts payable.
4.18.310 General reserve fund—Discontinuing liability contributions.
4.18.315 Expense fund.
4.18.320 Certification of amounts due the general reserve fund.
4.18.325 Fund reserves.
4.18.330 Benefits exempt from taxes and attachments.
4.18.335 Transfer of existing funds.
4.18.340 Initial appropriation.
4.18.345 Amendment and repeal.
4.18.350 Reserved.
4.18.351 Cost of living benefits—Retirees, surviving spouses and dependent children.
4.18.355—4.18.385 Reserved.
4.18.386 Accumulated sick leave.

4.18.010 Definitions.

The following words and phrases as used in this chapter, unless a different meaning is plainly required by the context, have the following meanings:

A. "Accumulated contributions" means the sum of all amounts deducted from the compensation of a member and credited to his individual account in the members' savings fund together with interest thereon.

B. "Actuarial equivalent" means a benefit of equal value when computed upon the basis of mortality tables and interest rate as adopted by the Board of Trustees.

C. "Average final compensation" means the average earnable compensation of the member during his last two (2) years of service as a fireman, or if he has had less than two (2) years of service, then the average earnable compensation of his entire period of service.

D. "Beneficiary" means any person in receipt of a retirement allowance or other benefit as provided by this chapter.

E. "Benefit reserve" means the present value of all payments to be made on account of any retirement allowance or benefit in lieu of a retirement allowance upon the basis of such mortality tables and interest rate as shall be adopted by the Board of Trustees.

F. "Board of Trustees" means the Board provided for in Section 4.18.055 to administer the Retirement System.

G. "Creditable service" means prior service plus membership service as provided in Sections 4.18.030 through 4.18.050.

H. "DROP" means the deferred retirement option plan provided for in Section 4.18.131.

I. "Earnable compensation" means the regular compensation which a member would earn during one year on the basis of the stated compensation for his rank or position.

J. "Fireman" means any officer or employee of the Fire Department of the City employed by the City for the duty of fighting fires, but does not include anyone employed in a clerical or other capacity not involving firefighting duties. In case of doubt as to whether any person is a fireman within the meaning of this chapter, the decision of the Board of Trustees shall be final.

K. "Medical Board" means the Board of Physicians provided for in Section 4.18.090.

L. "Member" means a member of the Retirement System as defined by Section 4.18.020.

M. "Membership service" means service as a fireman rendered since last becoming a member.

N. "Prior service" means all service as a fireman rendered prior to the date the system becomes operative which is creditable in accordance with the provisions of Sections 4.18.030 through 4.18.050.

O. "Retirement allowance" means annual payments for life which shall be payable in equal monthly installments or any benefits in lieu thereof granted to a member upon retirement or to a beneficiary.

P. "Retirement System" means the Firemen's Retirement System of any city as defined in Section 4.18.015.

Q. "Widow" means the surviving spouse of a member. (1960 C., § 335.010; 1994 C., § 4.18.010; Ord. No. 62994, § 2, 1993; Ord. No. 62372, § 2, 1991; Ord. No. 59716, § 2, 1986; Ord. No. 58179, § 1(part), 1980; Ord. No. 56444, § 1, 1973; Ord. No. 50707, § 1, 1961; Ord. No. 49623, § 1, 1959.)

Constitution:

Art 6 § 25 General assembly may authorize a city or county to provide retirement systems for its officers and employees

Charter:

Art. XVIII § 3(r) Retirement system

RSMo:

RSMo 87.120 et seq. (2016) Firemen's retirement and relief systems

City Counselor Ops: 10438

Cases:

Enabling statute authorizing city of 700,000 or more to provide for a fire department pension plan is permissive and does not automatically amend existing plan, see *Trantina v. Bd. of Trustees of Fire Retir. Sys.,* 503 S.W. 2d 148.

Amendments to firemen's retirement system ordinances held valid. *Fireman's Retirement System v. City of St. Louis*, 451 S.W.3d 714 (Mo.App.E.D. 2014).

McQuillin:

12.141 et seq. Pension laws

4.18.015 Created.

Under authority of an act of the Seventieth General Assembly known as Senate Bill No. 314 approved June 17, 1959 there is created and established the Firemen's Retirement System of St. Louis and by such name all of its business shall be transacted, all of its funds invested and all of its cash, securities and other property held. It shall be under the management of a Board of Trustees as provided in this chapter. It shall begin operation as soon as practicable after January 1,

1960. (1960 C., § 335.020; 1994 C., § 4.18.015; Ord. No. 49623, § 2, 1959.)

Editor's Note:

An act of the Seventieth General Assembly known as Senate Bill No. 314 approved June 17, 1959 is RSMo 87.120—87.371.

4.18.020 Membership—Exclusive.

All persons who are firemen shall be members as a condition of their employment and shall receive no pension or retirement allowance from any other pension or retirement system supported wholly or in part by the City or the state because of years of service for which they are entitled to benefits under this system nor shall they be required to make contributions under any other pension or retirement system of the City or the state, anything to the contrary notwithstanding. (1960 C., § 335.030; 1994 C., § 4.18.020; Ord. No. 49623, § 3(l), 1959.)

4.18.025 Membership—Absence.

A. If any member, in any period of five consecutive years after last becoming a member, is absent from service for more than four years unless the member has twenty years or more of creditable service, or if any member withdraws the member's accumulated contributions, or if any member becomes a beneficiary the person shall thereupon cease to be a member; except in the case of a member who has served in the armed forces of the United States or retired pursuant to RSMo 87.170, as amended, and is subsequently reinstated as a fireman or as a member in beneficiary status as a widow.

B. Any member who is reinstated after retiring pursuant to conditions in RSMo 87.170, as amended, shall not be eligible to participate in the benefit provided pursuant to RSMo 87.182, as amended. (1960 C. 335.040; 1994 C., § 4.18.025; Ord. No. 63988, § 2, 1997; Ord. No. 49623, § 3(2), 1959.)

4.18.030 Creditable service—Filing statement.

Under rules and regulations the Board of Trustees adopts, each member who was a fireman on and prior to the date of the establishment of the Retirement System shall file a detailed statement of all services as a fireman rendered by him prior to that date for which he claims credit. (1960 C., § 335.050; 1994 C., § 4.18.030; Ord. No. 49623, § 4(1), 1959.)

4.18.035 Creditable service—Year equivalent.

The Board of Trustees shall fix and determine by proper rules and regulations how much service in any year is equivalent to one year of service, but in no case shall more than one year of service be creditable for all service in one calendar year, nor shall the Board of Trustees allow credit as service for any period of more than one month's duration during which the member was absent without pay. (1960 C., § 335.060; 1994 C., § 4.18.035; Ord. No. 49623, § 4(2), 1959.)

4.18.040 Creditable service—Verification.

Subject to the restrictions in Sections 4.18.030 and 4.18.035 and to other rules and regulations the Board of Trustees may adopt, the Board of Trustees shall verify the service claims as soon as practicable after the filling of the statement of service. (1960 C., § 335.070; 1994 C., § 4.18.040; Ord. No. 49623, § 4(3), 1959.)

4.18.045 Creditable service—Prior service.

Upon verification of the statements of service the Board of Trustees shall issue prior service certificates, certifying to each member the length of prior service with which he is credited on the basis of his statement of service. So long as the holder of the certificate continues to be a member, a prior service certificate shall be final and conclusive for retirement purposes as to service, except that any member may, within one year from the date of issuance or modification of the certificate request the Board of Trustees to modify or correct his prior service certificate, and upon such request or of its own motion the Board may correct the certificate. When any fireman ceases to be a member his prior service certificate shall become void. Should he again become a member, he shall enter the Retirement System as a member not entitled to prior service credit except as provided in Section 4.18.180. (1960 C., § 335.080; 1994 C., § 4.18.045; Ord. No. 49623, § 4(4), 1959.)

4.18.050 Creditable service—Retirement base.

Creditable service at retirement on which the retirement allowance of a member shall be based shall consist of creditable membership service rendered by him, and also if he has a prior service certificate which is in full force and effect, the amount of the service certified on his prior service certificate. Service rendered by a fireman after the operative date and prior to becoming a member shall be included as creditable membership service provided the service was rendered since he last became a fireman. (1960 C., § 335.090; 1994 C., § 4.18.050; Ord. No. 49623, § 4(5), 1959.)

4.18.055 Board of Trustees—Composition—Vacancy—Compensation—Oath—Votes.

A. The general administration and the responsibility for the proper operation of the Retirement System shall be vested in a Board of Trustees of eight persons. The Board shall be constituted as follows:

1. The Chief of the Fire Department of the City, ex officio;

2. The Comptroller or Deputy Comptroller of the City, ex officio;

3. Two members to be appointed by the Mayor of the City to serve for a term of two years;

4. Three members to be elected by the members of the Retirement System for a term of three years who shall be members of the system and hold office while members of the system;

5. One member who shall be a retired fireman to be elected by the retired fireman who shall hold office for a term of three years.

B. If a vacancy occurs in the office of Trustee the vacancy shall be filled for the unexpired term in the same manner as the office was previously filled.

C. The Trustees shall serve without compensation, but they shall be reimbursed from the expense fund for all necessary expenses which they may incur through service on the Board.

D. Each Trustee shall within ten days after his appointment or election take an oath of office before the Clerk of the Circuit Court of the City, that, so far as it devolves upon him, he will diligently and honestly administer the affairs of the Board and that he will not knowingly violate or willingly permit to be violated any of the provisions of the law applicable to the Retirement System. The oath shall be subscribed to by the member making it and certified by the Clerk of Circuit Court and filed in his office.

E. Each Trustee shall be entitled to one vote on the Board. Five votes shall be necessary for a decision by the Trustees at any meeting of the Board.

F. Notwithstanding anything in Chapter 4.18 of the Revised Code of the City of St. Louis to the contrary, nothing shall prevent the Board of Trustees of the Firemen's Retirement System from simultaneously acting as the Board of Trustees of Firefighter's Retirement Plan that provides retirement, disability, and death benefits for the firefighters of the City of St. Louis and their covered dependents. The administration of the Firefighter's Retirement Plan shall be in accordance with its terms.

G. The administration of the Firefighter's Retirement Plan includes the ability for the Board of Trustees to establish rules and regulations from time-to-time for the administration of funds of the Firefighter's Retirement Plan and for the transaction of Firefighter's Retirement Plan business.

(1960 C., § 335.100; 1994 C., § 4.18.055; Ord. No. 71818, § 1, 3-7-2024; Ord. No. 59018, § 1, 1984; Ord. No. 58242, § 3(part), 1981; Ord. No. 49623, § 5, 1959.)

4.18.060 Board of Trustees—Jurisdiction.

The Board of Trustees shall have exclusive original jurisdiction in all matters relating to or affecting the funds provided for in this chapter, including, in addition to all other matters, all claims for benefits and refunds under this law, and its action, decision or determination in any matter shall be reviewable under RSMo Ch. 536 only, and any party to the proceedings shall have a right of appeal from the decision of the reviewing court. Subject to the limitations of this act, the Board of Trustees shall, from time to time, establish rules and regulations for the administration of funds created by this law, for the transaction of its business, and for the limitation of the time within which claims may be filed. (1960 C., § 335.110; 1994 C., § 4.18.060; Ord. No. 70248, § 1, 3-22-2016; Ord. No. 69183, § 2, 7-2-2012; Ord. No. 49623, § 6, 1959.)

City Counselor Ops.: 8848, 8967, 10262

Editor's Note:

Ord. No. 70248, § 1, adopted March 22, 2016, amended the Code by repealing Ord. No. 69183. § 2 of Ord. No. 69183 renumbered former § 4.18.060 as § 4.18.060A; consequently, the editor has restored the original numbering. The historical notation has been retained with the amended provisions for reference purposes.

4.18.060B Reserved.

Editor's Note:

Ord. No. 70248, § 1, adopted March 22, 2016, amended the Code by repealing Ord. No. 69183. § 3 of Ord. No. 69183 added § 4.18.060.B; consequently, the editor has deleted § 4.18.060B. Formerly, § 4.18.060B pertained to the administration and duties of the Board of Trustees.

4.18.065 Board of Trustees—Officers—Employees.

The Board of Trustees shall elect from its membership a Chairman, and shall by majority vote of its

members appoint a secretary who may be one of its members. It may engage actuarial and other services as required to transact the business of the Retirement System. The compensation of all person engaged by the Board of Trustees and all other expenses of the Board necessary for the operation of the Retirement System shall be paid at such rates and in amounts the Board and Trustees shall approve. (1960 C., § 335.120; 1994 C., § 4.18.065; Ord. No. 49623, § 7, 1959.)

City Counselor Ops.: 8730

Cases:

Article XVIII of the City Charter did not apply to the positions of secretary and clerk-typist employed in the service of the Firemen's Retirement System of St. Louis, thus those positions were not subject to civil service rules. *Firemen's Retirement System v. St. Louis,* 789 S.W. 2d 484 (Mo.banc. 1990).

4.18.070 Board of Trustees—Data for actuarial valuation.

The Board of Trustees shall keep in convenient form data as is necessary for actuarial valuation of the funds of the Retirement System and for checking the experience of the system. (1960 C., § 335.130; 1994 C., § 4.18.070; Ord. No. 49623, § 8(1), 1959.)

4.18.080 Board of Trustees—Records—Reports.

The Board of Trustees shall keep a record of all its proceedings which shall be open to public inspection. It shall publish annually a report showing the fiscal transactions of the Retirement System for the preceding fiscal year, the amount of the accumulated cash and securities of the system, and the last balance sheet showing the financial condition of the system by means of an actuarial valuation of the assets and liabilities of the Retirement System. To the extent the Board of Trustees administers the Firefighters' Retirement Plan, it shall maintain separate records of the Firefighters' Retirement Plan.
(1960 C., § 335.140; 1994 C., § 4.18.080; Ord. No. 71818, § 2, 3-7-2024; Ord. No. 49623, § 8(2), 1959.)

4.18.085 Legal Advisor.

The City Counselor of the City shall be the Legal Advisor of the Board of Trustees. (1960 C., § 335.150; 1994 C., § 4.18.085; Ord. No. 49623, § 9(1), 1959.)

4.18.090 Medical Board.

The Board of Trustees shall designate a Medical Board to be composed of three physicians who shall arrange for and pass upon all medical examinations required under the provisions of this act, shall investigate all essential statements and certificates made by or on behalf of a member in connection with an application for disability retirement and shall report in writing to the Board of Trustees its conclusions and recommendations upon all the matters referred to it. (1960 C., § 335.160; 1994 C., § 4.18.090; Ord. No. 49623, § 9(2), 1959.)

City Counselor Ops.: 8967, 10517

4.18.095 Actuary.

The actuary shall be the technical adviser of the Board of Trustees on matters regarding the operation of the funds created by this act and shall perform other duties as are required in connection therewith. He shall be qualified by membership as a Fellow in the Society of Actuaries. (1960 C., § 335.170; 1994 C., § 4.18.095; Ord. No. 49623, § 10(1), 1959.)

City Counselor Ops.: 9085

4.18.100 Actuarial investigation and tables.

The Board of Trustees shall have made every five years an actuarial investigation into the mortality, service and compensation experiences of the members and beneficiaries of the Retirement System and, taking into account the results of the investigation and valuation, the Board of Trustees shall establish for the Retirement System mortality, service and other tables as necessary. (1960 C., § 335.180; 1994 C., § 4.18.100; Ord. No. 49623, § 10(2), 1959.)

4.18.105 Annual valuation of funds.

On the basis of the tables as the Board of Trustees adopt, the actuary shall make an annual valuation of the assets and liabilities of the funds of the system. (1960 C., § 335.190(part); 1994 C., § 4.18.105; Ord. No. 49623, § 10(3), 1959.)

4.18.110 Contribution rates.

On the basis of the valuation the Board of Trustees shall certify the rates of contribution payable by the City. (1960 C., § 335.190(part); 1994 C., § 4.18.110; Ord. No. 49623, § 10(4), 1959.)

4.18.115 Retirement—By Board of Trustees.

Retirement of a member on a service retirement allowance shall be made by the Board of Trustees subject to Sections 4.18.120 and 4.18.125. (1960 C., § 335.200; 1994 C., § 4.18.115; Ord. No. 49623, § 11(part), 1959.)

4.18.120 Retirement—Written application after twenty-five years of service—Compulsory retirement—Seventy percent requirement.

A. Any member may retire upon the member's written application to the Board of Trustees setting forth at what time, not less than thirty days nor more than ninety days subsequent to the execution and filing therefor, the member desires to be retired, if the member at the time so specified for such member's retirement has twenty-five years or more of service; except that a member who ceases to be a fireman after twenty years or more of service may retire prior to the twenty-five years of service with a retirement allowance based on such member's years of service.

B. Any member in service upon attaining the age of sixty, if qualifying for a service retirement allowance equal to seventy-five percent of the average final compensation, may be retired forthwith; except that with respect to any member, the Board shall not retire such member when the member attains sixty years of age or more merely because the member has attained that age unless the member so requests or the member has completed thirty or more years of service, even if a portion of such service is not creditable service pursuant to participation in the deferred retirement option plan prescribed by Ordinance 62994.

C. Any member who qualifies for a service retirement allowance of seventy-five percent or over and has not attained the sixty years of age may be retained as a member until sixty years of age, with no increase in

retirement allowance. (1960 C., § 335.210; 1994 C., § 4.18.120; Ord. No. 63591, § 2, 1995; Ord. No. 63286, § 2, 1994; Ord. No. 59018, § 1, 1983; Ord. No. 57603(part), 1978; Ord. No. 55177, § 1, 1968; Ord. No. 49623, § 11(1), 1959.)

City Counselor Ops.: 9395, 9396

4.18.125 Consumer Price Index increase.

The retirement allowance due any member under the provisions of RSMo 87.120 to 87.370, as amended, which said member retires from service prior to February 15, 1978 with a retirement service allowance, may be increased at the rate of three percent (3%) per year whenever it has been determined by the Board of Trustees that the consumer price index as published by the United States Department of Labor shows an increase of at least three percent (3%) for three (3) consecutive months in the twelve (12) month period preceding; at the discretion of the Board of Trustees a cash payment may be made in lieu of such percentage increase in an amount to be determined by the Board but not to exceed fifty dollars ($50.00), and not to exceed a total increase of twenty-five percent (25%). Such increase in retirement allowance shall commence in the payment for the first month following the determination by the Board of Trustees shall, at a regular meeting or at a special meeting called for that purpose, consider the question of whether there has been an increase in such Consumer Price Index. (1960 C., § 335.220; 1994 C., § 4.18.125; Ord. No. 60025, § 1, 1986; Ord. No. 59578, § 1, 1985; Ord. No. 59018, § 2, 1983; Ord. No. 57603(part), 1978; Ord. No. 55177, § 1, 1968; Ord. No. 49623, § 11(2), 1959.)

City Counselor Ops.: 9395, 9396

4.18.130 Service retirement allowance.

A. Upon retirement for service, a member shall receive a service retirement allowance which shall be equal to fifty percent of the average final compensation, plus an amount equal to five percent of the average final compensation for each additional year of service after twenty-five years, but no service retirement allowance shall exceed an amount equal to seventy-five percent of the average final compensation.

B. In addition to any other annuity or retirement allowance payable under this section and RSMo 87.195 and 87.205, any member upon retirement application approval shall be repaid the total amount of the member's contribution to the retirement system, without interest. Any beneficiary, upon the receipt of evidence and proof of the death of an active member, shall be repaid the total amount of the member's contribution to the Firemen's Retirement System, without interest. The Board shall pay the beneficiary such total amount of the member's contribution to the Retirement System within sixty days after the date of the death of the member.

C. Any annuity or retirement allowance repaid to a member under Subsection B of this section shall be withdrawn from the member's contribution fund of the Firemen's Retirement System and no moneys shall be withdrawn from the general revenue fund of the City. (1994 C., § 4.18.130; Ord. No. 63591, § 3, 1995; Ord. No. 63286, § 3, 1994; Ord. No. 59018, § 3, 1983; Ord. No. 58651, §§ 1—3, 1982.)

Cases:

The argument that City of St. Louis Ordinance No. 59018 was invalid for failing to adopt the formula for calculating pension benefits provided by statute was rejected. *Firemen's Ret. Sys. v. City of St. Louis,* 754 S.W. 2d 21 (Mo.App. 1988).

4.18.131 DROP program.

A. The Board may develop and establish a deferred retirement plan program (DROP) which may include a self-directed program, in which members eligible for retirement may participate. The DROP program shall be designed to allow members with at least twenty years of creditable service who have achieved eligibility for retirement and receipt of a service retirement allowance to continue active employment and defer receipt of the retirement allowance for a period not to exceed five years. Any member who has at least twenty years of creditable service may elect in writing before retirement to participate in the DROP program. A member electing to participate in the DROP program shall continue in active employment and shall not receive any direct retirement allowance payments during the time of participation. Upon the start of participation in the DROP program, the member shall make the contributions as provided in RSMo 87.295. No contribution shall be required by the City. During the period of participation in the DROP program, the amount that the member would have received as a service retirement allowance shall be deposited monthly in the member's DROP account which shall be established in his or her name by the board. Service earned during the period of participation in the DROP program shall not be creditable service and shall not be counted in determination of any service retirement allowance.

B. If a member who has elected to participate in the DROP program chooses to stop participation in the DROP program, he or she shall notify the board in writing. Upon receipt of notice of a member's desire to end participation in the DROP program, the board shall return the member to non-DROP participation status and both the member and the City shall make the contributions required by RSMo 87.120 to 87.370. Service rendered after restoration of the member to non-DROP participation status shall be counted as creditable service. No member ending participation in the DROP program and returning to non-DROP participation status shall make any withdrawal from his or her DROP account until after termination of employment. If after return to non-DROP participation status, a member retires, the member's retirement allowance shall be computed on the combination of the member's pre-DROP service retirement allowance plus an additional allowance earned by a member after returning to non-DROP participation status. Post-DROP participation years of service will be the only years used in computing the additional allowance; however, total years of creditable service will be used to determine the appropriate level of additional allowance, two percent or five percent, for each year of post-DROP participation service. Upon retirement the member shall receive additional benefits as provided under the provisions of RSMo 87.120 to 87.371 plus the amount which has accumulated in his or her DROP account. The amount in the member's DROP account shall be payable, at the member's option, either as a lump sum payment or as a periodic payment calculated according to a deferred payment plan established by the board.

C. A member who terminates employment after participation in the DROP program may withdraw any amount in his or her DROP account in a lump sum or according to a deferred payment plan established by the Board at his option. If the member is eligible to receive a service retirement allowance, benefit payment shall begin at the time specified in RSMo 87.120 to 87.370.

D. If a member dies prior to termination of employment while participating in the DROP program, the funds in his or her DROP account shall be payable to the member's designated beneficiary under either of the following options:

1. A lump sum payment equal to the amount in the member's DROP account shall be paid to the beneficiary or the member's estate. The benefits for a beneficiary provided under the provisions of RSMo 87.120 to 87.370 shall be based on the member's compensation and creditable service prior to the member's election to participate in the DROP program; or

2. The beneficiary shall waive any right, claim or interest in the member's DROP account and any benefits payable to the beneficiary under the provisions of RSMo 87.120 to 87.370 shall be calculated as if the member had continued as an employee and had not elected to participate in the DROP program. Any funds in a DROP account which has been waived as provided in this subsection shall become funds of the system.

E. If a member who has elected to participate in the DROP program subsequently applies for and receives benefits for an accidental disability retirement allowance under the provisions of RSMo 87.205, the member shall forfeit all rights, claims or interest in his or her DROP account and the member's benefits shall be calculated as if the member had continued in employment and had not elected to participate in the DROP program. Any funds in a DROP account which has been forfeited as provided in this subsection shall become funds of the system.

F. Except in the case of any self-directed program, a member's DROP account shall earn interest equal to the percentage rate of return of the system's investment portfolio as certified annually by the system's actuary in the yearly evaluation report. Except in the case of any self-directed program, the interest shall be credited annually to the member's account beginning with the start of the second fiscal year of participation.

G. No member may elect to participate in the DROP program more than once. (1994 C., § 4.18.131; Ord. No. 65993, § 1, 2003; Ord. No. 63591, § 3, 1995; Ord. No. 62994, § 3, 1993.)

4.18.132 Benefit increases—Funding.

The funding for increases in benefit provisions of RSMo 87.170, 87.175, 87.182 and 87.371 shall be funded from the future benefits fund. (1994 C., § 4.18.132; Ord. No. 63591, § 4, 1995.)

4.18.135 Resigned members leaving contributions in system.

A member who ceases to be a fireman after twenty years or more of service and leaves his contributions with the system may receive either:

A. A retirement allowance upon attaining normal retirement age calculated in the same manner as if he were that age when he ceased to be a fireman; or

B. A retirement allowance beginning any time prior to normal retirement age which is the actuarial equivalent of the retirement allowance he would be entitled to at normal retirement age. (1960 C., § 335.240; 1994 C., § 4.18.135; Ord. No. 55177, § 1, 1968; Ord. No. 49623, § 13, 1959.)

City Counselor Ops.: 9395, 9396

4.18.140 Credit for service in armed forces during war.

If, at any time since first becoming a member of the Retirement System, a member has served in the armed forces of the United States, in any war or period of armed hostilities between the armed forces of the United States and those of a foreign power, and has subsequently been reinstated as a fireman within ninety days after his discharge, he shall be granted credit for such service as if his service in the Fire Department of the City had not been interrupted by his induction into the armed forces of the United States, and as if he had made the required contributions during such service. If earnable compensation is needed for such period in computation of benefits it shall be calculated on the basis of the compensation payable to the officers of his rank during the period of his absence. (1960 C., § 335.250; 1994 C., § 4.18.140; Ord. No. 49623, § 14, 1959.)

4.18.145 Ordinary disability allowance—Application.

Upon the application of a member in service or of the Chief of the Fire Department, any member who has had five years or more of creditable service shall be retired by the Board of Trustees not less than thirty and not more than ninety days next following the date of filing the application on an ordinary disability retirement allowance, if the Medical Board after a medical examination of the member shall certify that the member is mentally or physically incapacitated for the further performance of duty, that the incapacity is likely to be permanent, and that the member should be retired. (1960 C., § 335.260; 1994 C., § 4.18.145; Ord. No. 50707, § 1, 1961; Ord. No. 49623, § 15, 1959.)

Cases:

Former fireman's claim for disability benefits under the St. Louis Firemen's Retirement System was barred by five-year statute of limitations. *Hildebrand v. Firemen's Retirement System of St. Louis,* 527 F.2d 567 (1975).

City Counselor Ops.: 10517

4.18.150 Ordinary disability allowance—Computation.

The retirement allowance due any member under the provisions of RSMo 87.120 to 87.370 (1978), as amended, which said member retires from service prior to February 15, 1973 with an ordinary disability allowance, may be increased at the rate of three percent (3%) per year whenever it has been determined by the Board of Trustees that the consumer price index as published by the United States Department of Labor shows an increase of at least three percent (3%) for three (3) consecutive months in the twelve (12) month period preceding; at the discretion of the Board of Trustees a cash payment may be made in lieu of such percentage increase in an amount to be determined by the Board but not to exceed fifty ($50.00) dollars, and not to exceed a total increase of twenty-five (25%) percent. Such increase in the retirement allowance shall commence in the payment for the first month following the determination by the Board of Trustees. At least once each quarter the Board of Trustees shall, at a regular meeting or at a special meeting called for that purpose, consider the question of whether there has been an increase in such consumer price index. (1960 C., § 335.270; 1994 C., § 4.18.150; Ord. No. 60025, § 3, 1986; Ord. No. 59578, § 3, 1986; Ord. No. 59018, § 4, 1983; Ord. No. 55177, § 1, 1968; Ord. No. 50707, § 1, 1961; Ord. No. 49623, § 16, 1959.)

City Counselor Ops.: 9395, 9396, 10517

4.18.155 Accidental disability allowance—Application.

Upon application by the member or the Chief of the Fire Department, any member who has become totally and permanently incapacitated for duty as the natural and proximate result of an accident occurring while in the actual performance of duty or exposure while in the actual performance of duty in response to an emergency call shall be retired by the Board of Trustees, if the Medical Board shall certify that the member is mentally or physically incapacitated for further performance of duty, that the incapacity is likely to be permanent and that the member should be retired. If the accident occurred prior to the beginning of the member's twentieth year of service, application for benefits must be made before this time, except that the interval between the date of accident and the applica-

tion may be at least one year. (1960 C., § 335.280; 1994 C., § 4.18.155; Ord. No. 59018, § 5, 1983; Ord. No. 55177, § 1, 1968; Ord. No. 50707, § 1, 1961; Ord. No. 49623, § 17, 1959.)

Cases:

Former fireman's claim for disability benefits under the St. Louis Firemen's Retirement System was barred by five-year statute of limitations. *Hildebrand v. Firemen's Retirement System of St. Louis,* 527 F.2d 567 (1975).

City Counselor Ops: 9138, 9395, 9396, 10244, 10517

4.18.157 Accidental disability allowance—Amount.

A. Upon retirement for accidental disability, a member shall receive seventy-five percent of the pay then provided by law for the highest step in the range of salary for the title or rank held by such member at the time of such retirement unless the member is permanently and totally incapacitated from performing any work, occupation or vacation of any kind whatsoever and is continuously confined to the member's home except for visits to obtain medical treatment, in which event the member may receive, in the discretion of the Board of Trustees, a retirement allowance in an amount not exceeding the member's rate of compensation as a firemen in effect as of the date the allowance begins.

B. Anyone who has retired pursuant to the provisions of RSMo 87.170, as amended, and has been reinstated pursuant to Subsection 2 of RSMo 87.130, as amended, who subsequently becomes disabled as provided in RSMo 87.200, as amended, shall receive a total benefit which is the higher of either the disability pension or the service pension. (1994 C., § 4.18.157; Ord. No. 63988, § 3, 1997.)

4.18.160 Accidental disability allowance—Computation.

The retirement allowance due any member under the provisions of RSMo 87.120 to 87.370 (1978), as amended which said member retires from service prior to February 15, 1973, accident disability allowance may be increased at the rate of three percent (3%) per year whenever it has been determined by the Board of Trustees that the consumer price index as published by the United States Department of Labor shows an increase of at least three percent (3%) for three (3) consecutive months in the twelve (12) month period preceding; at the discretion of the Board of Trustees a cash payment may be made in lieu of such percentage increase in an amount to be determined by the Board but not to exceed fifty dollars ($50.00), and not to exceed a total increase of twenty-five (25%) percent. Such increase in retirement allowance shall commence in the payment for the first month following the determination by the Board of Trustees. At least once each quarter the Board of Trustees shall, at a regular meeting or at a special meeting called for that purpose, consider the question of whether there has been an increase in such consumer price index. (1960 C., § 335.290; 1994 C., § 4.18.160; Ord. No. 60025, § 2, 1986; Ord. No. 59578, § 3, 1986; Ord. No. 54780, § 1, 1967; Ord. No. 49623, § 18, 1959.)

City Counselor Ops.: 8886, 8950, 9646, 10517

4.18.165 Increases in allowances.

A. The following allowances due under the provisions of RSMo 87.120 to 87.370 of any member who retired from service shall be increased annually, as approved by the Board of Trustees beginning with the first increase in the October following his retirement and subsequent increases in each October thereafter, at the rates designated:

1. With a retirement service allowance or ordinary disability allowance:

a. One and one-half percent per year, compounded each year, up to age sixty for those retiring with twenty to twenty-four years of service.

b. Two and one-fourth percent per year, compounded each year, up to age sixty for those retiring with twenty-five to twenty-nine years of service.

c. Three percent per year, compounded each year, up to age sixty for those retiring with thirty or more years of service.

d. After age sixty, five percent per year for five years or until a total maximum increase of twenty-five percent is reached.

2. With an accidental disability allowance, three percent per year, compounded each year, up to age sixty then five percent per year for five years or until a total maximum increase of twenty-five percent is reached.

B. Each increase, however, is subject to a determination by the Board of Trustees that the consumer price index (United States Average Index) as published by the United States Department of Labor shows an increase of not less than the approved rate during the latest twelve-month period for which the index is available at date of determination. If the increase is in excess of the approved rate for any year, the excess shall be accumulated as to any retired member and increases may be granted in subsequent years subject to the

maximum allowed for each full year from October following his retirement but not to exceed a total increase of twenty-five percent. If the Board of Trustees determines that the index has decreased for any year, the benefits of any retired member that have been increased shall be decreased but not below his initial benefit. No annual increase shall be made of less than one percent and no decrease of less than three percent except that any decrease shall be limited by the initial benefit. (1960 C., § 335.295; 1994 C., § 4.18.165; Ord. No. 59018, § 6, 1983; Ord. No. 58179, § 1(part), 1980; Ord. No. 56444, § 1, 1973.)

City Counselor Ops.: 10438

4.18.170 Medical exams for continuance of disability allowances.

Once each year during the first five years following the retirement of a member on a disability retirement allowance, and once in every three-year period thereafter, the Board of Trustees may, and upon his application shall, require any disability beneficiary to undergo a medical examination, the examination to be made at a place designated by the Medical Board, and to be made by the Medical Board or by a physician or physicians designated by the Medical Board. Should any disability beneficiary refuse to submit to a medical examination, his allowance may be discontinued until his withdrawal of the refusal, and if his refusal continues for one year all rights in and to his allowance may be revoked by the Board of Trustees. (1960 C., § 335.300; 1994 C., § 4.18.170; Ord. No. 49623, § 19, 1959.)

4.18.175 Adjustment of disability allowances.

If the Medical Board reports and certifies to the Board of Trustees that the disability beneficiary is engaged or is able to engage in a gainful occupation other than fireman paying more than the difference between his retirement allowance and one and one-half times the then-current rate of pay for the rank held by the member at the time of retirement, and if the Board of Trustees concurs in the report, then the amount of his retirement allowance shall be reduced to an amount which, together with the amount earnable by him in such other occupation, shall equal the amount of such current rate of pay. If his earning capacity is later changed, the amount of his retirement may be further modified. If any disability beneficiary is found by the Medical Board to be able to engage in the occupation of fireman, his retirement allowance shall not cease until he is restored to active service at the position and title held by the disability beneficiary at the time the disability occurred. (1960 C., § 335.310; 1994 C., § 4.18.175; Ord. No. 54779, § 1, 1967; Ord. No. 53605, § 1, 1965; Ord. No. 49623, § 20, 1959.)

4.18.180 Reinstatement of disabled members.

A. If the Medical Board reports and certifies to the Board of Trustees that the disability beneficiary is engaged or is able to engage in a gainful occupation other than fireman paying more than the difference between his retirement allowance and one and one-half times the then-current rate of pay for the rank held by the member at the time of retirement, and if the Board of Trustees concurs in the report, then the amount of his retirement allowance shall be reduced to an amount which together equal the amount of such current rate of pay. If his earning capacity is later changed, the amount of his retirement may be further modified. If any such disability beneficiary is found by such Medical Board to be able to engage in the occupation of fireman, his retirement allowance shall not cease until he is restored to active service at the position and title held by such disability beneficiary at the time such disability occurred.

B. If a disability beneficiary is restored to active service, his retirement allowance shall cease and he shall again become a member. His creditable service at the time of his retirement shall be restored to full force and effect and in addition, upon his subsequent retirement, he shall be credited with all his additional service as a member, and if his then average final compensation is less than the average final compensation used in determining his disability benefits, the latter amount shall be used in determining benefits. In addition, an accident-disabled member restored to active service shall be credited with all the time he served as a beneficiary. (1960 C., § 335.320; 1994 C., § 4.18.180; Ord. No. 59018, § 7, 1983; Ord. No. 54779, § 1, 1967; Ord. No. 49623, § 21, 1959.)

City Counselor Ops.: 9138

4.18.185 Death benefits—Retired members or members on disability allowance.

A. Upon the receipt of proper proofs of the death of a member who retired while in service, including retirement from service, ordinary disability or accidental disability, prior to September 28, 1983, and provided no other benefits are payable, there shall be paid the following benefits:

1. A retirement allowance to all widows during their widowhood of fifty percent of the deceased mem-

ber's average final compensation or two hundred dollars per month, whichever is greater, plus ten percent of such compensation to or for the benefit of each unmarried dependent child of the deceased member who is either under age eighteen or who is totally and permanently mentally or physically incapacitated regardless of age, but not in excess of three children, including both classes, and paid as the Board of Trustees in its discretion shall direct;

City Counselor Ops.: 8780

2. If no widow benefits are payable pursuant to Subsection A.1 of this section, such total allowance as would have been paid had there been a widow shall be divided among the unmarried dependent children under age eighteen and such unmarried children, regardless of age, who are totally and permanently mentally or physically incapacitated, and paid, to or for the benefit of such children, as the Board of Trustees in its discretion shall direct;

3. Any benefit payable to, or for the benefit of, a child or children under the age of eighteen years pursuant to Subsections A.1 and 2 of this section shall be paid beyond the age of eighteen years through the age of twenty-five years in such cases where the child is a full-time student at a regularly accredited college, business school, nursing school, school for technical or vocational training or university, but such benefit shall cease whenever the child ceases to be a student. A college or university shall be deemed to be regularly accredited which maintains membership in good standing in a national or regional accrediting agency recognized by an any state college or university.

City Counselor Ops.: 8917, 8968, 9022

B. Upon the receipt of proper proofs of the death of a member in service or who retired while in service, including retirement for service, ordinary disability or accidental disability, after September 28, 1983, and provided no other benefits are payable, there shall be paid the following benefits:

1. A retirement allowance to all widows during their widowhood of twenty-five percent of the deceased member's average final compensation or two hundred dollars per month, whichever is greater, plus ten percent of such compensation to or for the benefit of each unmarried dependent child of the deceased member who is either under age eighteen or who is totally and permanently mentally or physically incapacitated regardless of age, but not in excess of three children, including both classes, and paid as the Board of Trustees in its discretion shall direct;

2. If no widow's benefit are payable pursuant to Subsection B.1 of this section, such total allowance as would have been paid had there been a widow shall be divided among the unmarried dependent children, regardless of age, who are totally and permanently mentally or physically incapacitated, and paid to or for the benefit of such children, as the Board of Trustees in its discretion shall direct;

3. Any benefit payable to, or for the benefit of, a child or children under the age of eighteen years pursuant to Subsections B.1 and 2 of this section shall be paid beyond the age of eighteen years through the age of twenty-five years in such cases where the child is a full-time student at a regularly accredited college, business school, nursing school, school for technical or vocational training or university, but such benefit shall cease whenever the child ceases to be a student. A college or university shall be deemed to be regularly accredited which maintains membership in good standing in a national or regional accrediting agency recognized by an any state college or university. (1960 C., § 335.330; 1994 C., § 4.18.185; Ord. No. 63988, § 4, 1997; Ord. No. 59018, § 8, 1983; Ord. No. 58242, § 3(part), 1981; Ord. No. 52141, § 1, 1963; Ord. No. 49623, § 22, 1959.)

City Counselor Ops.: 8968, 9614

4.18.195 Death benefits—Accidental death in service.

A. Upon the receipt of evidence and proof that the death of a member was the result of an accident or exposure at any time, or place, provided that at such time or place the member was in the actual performance of the member's duty and, in the case of an exposure, while in response to an emergency call, or was acting pursuant to orders, there shall be paid in lieu of all other benefits the following benefits:

1. A retirement allowance to the widow during the person's widowhood of fifty percent of the deceased member's average final compensation, plus ten percent of such compensation to or for the benefit of each unmarried dependent child of the deceased member, who is either under the age of eighteen, or who is totally and permanently mentally or physically incapacitated, regardless of age, but not in excess of a total of three children, including both classes, and paid as the Board of Trustees in its discretion directs;

2. If no widow benefits are payable pursuant to Subsection A, the total allowance as would have been paid had there been a widow shall be divided among the unmarried dependent children under the age of eighteen and such unmarried children, regardless of age, who are totally and permanently mentally or physically incapacitated, and paid, to or for the benefit of such children as the Board of Trustees in its discretion shall direct;

3. If there is no widow, or child under the age of eighteen years, or child, regardless of age, who is totally and permanently mentally or physically incapacitated, then an amount equal to the widow's benefit shall be paid to the member's dependent father or dependent mother, as the Board of Trustees shall direct, to continue until remarriage or death;

4. Any benefit payable to, or for the benefit of, a child or children under the age of eighteen years pursuant to Subsections A.1 and 2 of this section shall be paid beyond the age of eighteen years through the age of twenty-five years in such cases where the child is a full-time student at a regularly accredited college, business school, nursing school, school for technical or vocational training or university, but such benefit shall cease whenever the child ceases to be a student. A college or university shall be deemed to be regularly accredited which maintains membership in good standing in a national or regional accrediting agency recognized by an any state college or university.

B. No benefits pursuant to this section shall be paid to a child over eighteen years of age who is totally and permanently mentally or physically incapacitated, if the child is a patient or ward in a public supported institution.

City Counselor Ops: 8894

C. Wherever any dependent child designated by the Board of Trustees to receive benefits pursuant to this section is in the care of the widow of the deceased member, the child's benefits may be paid to the widow of the child. (1960 C., § 335.340; 1994 C., § 4.18.195; Ord. No. 63988, § 5, 1997; Ord. No. 52141, § 1, 1963; Ord. No. 50707, § 1, 1961; Ord. No. 49623, § 23, 1959.)

City Counselor Ops.: 8968

4.18.200 Death benefits—Resigned member.

Upon receipt of proper proofs of the death of a member who resigned from service prior to attaining the age provided for in RSMo 87.170 (1978) as a requirement for service retirement allowance with twenty or more years of creditable service and who did not withdraw his accumulated contributions, there shall be paid a retirement allowance to the widow, only during her widowhood, of two hundred dollars per month or fifty percent of the deceased member's final compensation, whichever is greater. (1960 C., § 335.350; 1994 C., § 4.18.200; Ord. No. 58242, § 3(part), 1981; Ord. No. 53604, § 1, 1965; Ord. No. 49623, § 24, 1959.)

4.18.201 Death benefits—Funeral expenses.

A. In addition to any other benefit to which an active or retired firefighter may be entitled they shall be entitled to the following benefit approved by the General Assembly of this state and hereby adopted enacted into the laws and ordinances of this City, namely:

Whenever an active or retired fireman shall die, as aforesaid, the Board of Trustees shall appropriate from the fund a sum not exceeding one hundred and fifty dollars to the widow or family for funeral expenses. In cities not within a county the payment for funeral expenses shall be two thousand dollars, and shall be paid solely from moneys within the pension.

B. Any benefits paid pursuant to Subsection A of this section shall be paid only from the Future Benefit Fund established by Ordinance 61980. (1994 C., § 4.18.201; Ord. No. 62801, §§ 1, 2, 1992.)

4.18.205 Death benefits—Result of accident while on duty.

Upon the receipt by the Board of Trustees of evidence and proof that the death of a member was the natural and proximate result of an accident occurring at some definite time and place while the member was in the actual performance of duty, the Board of Trustees shall decide that death was the result of an accident in the performance of duty and not caused by negligence on the part of the member, there shall be paid lieu of all other benefits the following benefits:

A. A retirement allowance to the widow during her widowhood of fifty percent of the deceased member's final average compensation plus ten percent of such compensation for each unmarried dependent child of the deceased member under age eighteen in her care but not in excess of three children.

B. If no benefits are payable under Subsection A of this section, the total allowance shall be divided among the unmarried dependent children under age eighteen and paid, as the Board of Trustees in its discretion shall direct, except that not more than one-half of the widow's benefit shall be paid for one child.

C. If there is no widow or child under the age of eighteen years surviving the deceased member, then an amount equal to the widow's benefit shall be paid to his dependent father or dependent mother as the Board of Trustees in its discretion shall direct, to continue until remarriage or death. (1960 C., § 335.360; 1994 C., § 4.18.205; Ord. No. 49623, § 25, 1959.)

Cases:

For a case concerning the need to show a direct, but not necessary sole, causal connection between a fireman's duties and the injury resulting in death to entitle widow to increased pension benefits, see *Bergman v. Bd. of Trustees of Firemen's Retirement System,* 425 S.W. 2d 143 (1968).

4.18.207 Special consultants on problems of retirement.

A. Any widow who is receiving retirement benefits upon application to the Board of Trustees of the Retirement System, shall be made, constituted, appointed and employed by the Board as a special consultant on the problems of retirement, aging, and other state matters, for the remainder of her life, and upon request of the Board, give opinions, and be available to give opinions in writing, or orally, in response to such request, as may be required, and for such services shall be compensated monthly, in an amount, which when added to any monthly retirement benefits being received, shall not exceed fifty percent of the deceased member's average final compensation or two hundred dollars ($200.00) whichever is greater.

B. This compensation shall be consolidated with any other retirement benefits payable to such widow and shall be paid in the manner and from the same fund as her other retirement benefits under this chapter, and shall be treated in all aspects under the laws of this state as retirement benefits paid pursuant to this chapter.

C. The employment provided for by this section shall in no way affect any person's eligibility for retirement benefits under this chapter or in any way have the effect of reducing retirement benefits, anything to the contrary notwithstanding. (1960 C., § 335.355; 1994 C., § 4.18.207; Ord. No. 59018, § 9, 1984; Ord. No. 58242, § 3(part), 1981.)

4.18.208 Special advisors to Retirement System.

A. Any person who served as a fireman and who is retired and receiving a retirement allowance of less than three hundred fifty dollars ($350.00) per month may act as a special advisor to the Retirement System.

B. For the additional service as a special advisor, each retired person shall receive, in addition to the retirement allowance provided under this chapter, an additional amount, which amount, together with the retirement allowance he is receiving under other provisions of this chapter, shall equal, but not exceed, three hundred fifty dollars per month.

Any retirement allowance paid to a retiree under this subsection shall be withdrawn from the firemen's retirement and relief system fund and no moneys shall be withdrawn from the general revenue fund. (1994 C., § 4.18.208; Ord. No. 58652, §§ 1, 2, 1982.)

4.18.209 Special advisor to Retirement System—Staggered refunds.

A. In addition to any other annuity or retirement allowance paid or payable under the Firemen's Retirement System any retirant who is receiving benefits as a result of retirement prior to October 1, 1982, and any member of the system who ceased to be a member prior to October 1, 1982, and has vested retirement benefits shall, upon application to the Firemen's Retirement System, be made a special advisor to the Retirement System. The retirant shall be repaid the total amount of the members contribution to the system without interest. Upon the approval of this chapter, the Board of Trustees of the system shall establish a staggered system of refunding contributions to the special advisors, which staggered system of processing said refunded contributions shall not exceed three years to complete, and which staggered system shall be structured to address all classes of entitlement as set forth in this section. The staggered system of refunding shall consider first those special advisors having been retired from the system the longest period of time, and chronologically thereafter the next longest until the most recent retirants shall be refunded their contributions, which most recent retirants within said staggered system shall be the last entitled to have their contributions refunded.

B. Any contributions paid under Subsection A of this section shall be withdrawn from the general fund of the Firemen's Retirement System and no monies shall be withdrawn from the General Revenue Fund of the City. (1994 C., § 4.18.209; Ord. No. 61844, § 3, 1990.)

4.18.210 Early withdrawal of funds.

If a member ceases to be a fireman except by death or retirement, he shall be paid on demand the amount of his accumulated contributions standing to the credit of his individual account in the member's savings fund, and such a member who has left his contributions with the system may later withdraw his accumulated contri-

butions at any time, prior to the beginning of his retirement benefits. (1960 C., § 335.370; 1994 C., § 4.18.210; Ord. No. 49623, § 26, 1959.)

4.18.215 Payment of difference between benefits paid and accumulated contributions.

If there are no further benefits otherwise payable under this chapter and the total amount of benefits paid to date is less than an amount equal to the accumulated contribution of the member at his death or at his retirement whichever occurred first, the difference shall be paid to the beneficiary named to receive the amount or if no such beneficiary is living, to the beneficiary or the estate of the beneficiary last entitled to benefits. (1960 C., § 335.380; 1994 C., § 4.18.215; Ord. No. 49623, § 27, 1959.)

4.18.220 Members covered under this chapter.

All members who are firemen on or after January 1, 1960 and their beneficiaries shall receive benefits as provided by this chapter, and all members and retired members who are not firemen as of January 1, 1960 and their beneficiaries shall receive benefits as provided by the laws in effect prior thereto. (1960 C., § 335.390; 1994 C., § 4.18.220; Ord. No. 49623, § 28, 1959.)

4.18.225 Funds—Investments.

A. The Board of Trustees of the Firefighter's Retirement System shall have the exclusive authority and discretion to invest and reinvest the funds in property of any kind, real or personal. The Board of Trustees shall invest and manage the fund as a prudent investor would, by considering the purposes, terms, distribution requirements, and other circumstances of the Firefighter's Retirement System. In satisfying this standard, the Board of Trustees shall exercise reasonable care, skill, and caution. No trustee shall have any interest as a trustee in the gains or profits made on any investment, except benefits from interest in investments common to all members of the plan, if entitled thereto.

B. Nothing in this chapter shall be construed as prohibiting the retirement system from appointing, designating, and using a nominee or representative for purposes of acquiring, holding title to, and disposing of those investments which are authorized by Chapter 335.

C. The Trustees of the Firemen's Retirement and Relief System shall publish every six (6) calendar months of portfolio of investments under their control in said Retirement Fund and Relief System, and shall forward a copy of said report to each of the elected Aldermen of the City of St. Louis of this ordinance.

D. To the extent the Board of Trustees administers the Firefighters' Retirement Plan, it shall also have the authority and discretion to invest and reinvest the funds of the Firefighters' Retirement Plan in property of any kind, real or personal. It can choose to invest the funds of the Firemen's Retirement System and the funds of the Firefighters' Retirement Plan in the same investments, so long as the amounts invested and the gains, profits, or losses on such investment are accounted for separately. No benefits due to firefighters or their covered dependents from the Firefighters' Retirement Plan shall be paid from the Firemen's Retirement System funds.

(1960 C., § 335.410; 1994 C., § 4.18.225; Ord. No. 71818, § 3, 3-7-2024; Ord. No. 67259, § 2, 2006; Ord. No. 63475, § 1, 1995; Ord. No. 59822, §§ 2—7, 1986; Ord. No. 57962, § 2, 1979; Ord. No. 49623, § 30, 1959.)

4.18.226 Funds—Use of representative to acquire and dispose of investments.

Nothing in this chapter shall be construed as prohibiting the retirement system from appointing, designating, and using a nominee or representative for purposes of acquiring, holding title to, and disposing of those investments which are authorized by this chapter. (1994 C., § 4.18.226; Ord. No. 57962, § 3, 1979.)

4.18.230 Funds—Interest rates.

The Board of Trustees annually shall allow interest at the rate determined by the Board on the mean amount for the preceding year in each of the funds with the exception of the expense fund. The amount so allowed shall be due and payable to the funds and shall be annually credited thereto by the Board of Trustees from interest and other earnings on the moneys and other assets of the retirement system. From the interest allocated to the member's savings fund, the Board of Trustees shall annually credit each member's individual account with interest on the largest balance remaining in each account for the entire year and at the rate determined by the Board. (1960 C., § 335.420; 1994 C., § 4.18.230; Ord. No. 49623, § 31, 1959.)

4.18.235 Funds—Custodian—Vouchers.

The City Treasurer shall be the custodian of the several funds. All payments from the funds shall be made by him only upon vouchers signed by two persons

designated by the Board of Trustees. A duly attested copy of the resolution of the Board of Trustees designating the persons and bearing on its face specimen signatures of the persons shall be filed with the Treasurer as his authority for making payments upon the vouchers. No voucher shall be drawn unless it shall previously have been allowed by the Board of Trustees. (1960 C., § 335.430; 1994 C., § 4.18.235; Ord. No. 49623, § 32, 1959.)

4.18.240 Funds—Cash on hand—Deposits.

For the purpose of meeting disbursements for benefits and other payments there may be kept available cash not exceeding ten percent of the total amount in the several funds of the retirement system on deposit in one or more banks or trust companies in the City, organized under the laws of the state or of the United States. The amount on deposit in any one bank or trust company shall not exceed twenty-five percent of the paid up capital and surplus of the bank or trust company. (1960 C., § 335.440; 1994 C., § 4.18.240; Ord. No. 49623, § 33, 1959.)

4.18.245 Funds—Board and employees restricted on gains.

Except as herein provided, no trustee and no employee of the Board shall have any direct interest in the gains or profits of any investment made by the Board of Trustees, nor as such receive any pay or emolument for his services. No trustee or employee of the Board of Trustees shall directly or indirectly for himself or as an agent in any manner use the assets of the retirement system except to make such current and necessary payments as are authorized by the Board of Trustees, nor shall any trustee or employee of the Board become an endorser or surety or become in any manner an obligor for moneys loaned by or borrowed from the Board of Trustees. (1960 C., § 335.450; 1994 C., § 4.18.245; Ord. No. 49623, § 34, 1969.)

4.18.250 Funds—Enumerated.

All the assets of the retirement system shall be credited according to the purpose for which they are held to one of four funds, namely, the members' savings funds, the benefit reserve fund, the general reserve fund, and the expense fund. The Board of Trustees is authorized to transfer and close out the fund accounts as provided prior to January 1, 1960 into the appropriate fund accounts provided by this chapter. (1960 C., § 335.460; 1994 C., § 4.18.250; Ord. No. 49623, § 35, 1959.)

4.18.255 Members' savings fund.

The members' savings fund shall be the fund in which shall be accumulated contributions of the members. (1960 C., § 335.470; 1994 C., § 4.18.255; Ord. No. 49623, § 36, 1959.)

4.18.260 Member contribution—Percentage.

The Board of Trustees shall certify to the Chief of the Fire Department and the Chief of the Fire Department shall cause to be deducted from the salary of each member on each and every payroll for each and every pay period, eight percent of the compensation of each member not participating in the DROP program, and one percent of the compensation of each member participating in the DROP program. (1960 C., § 335.480; 1994 C., § 4.18.260; Ord. No. 62994, § 4, 1993; Ord. No. 57603(part), 1978; Ord. No. 49623, § 37, 1959.)

4.18.265 Member contribution—Consent—Crediting individual account.

The deductions provided for herein shall be made notwithstanding that the minimum compensation provided by law for any member shall be reduced thereby. Every member shall be deemed to consent to the deductions made and provided for herein, and shall receipt for his full salary or compensation, and payment of salary or compensation less the deduction shall be a full and complete discharge and acquittance of all claims and demands whatsoever for services rendered during the period covered by the payment except as to benefits provided by this chapter. The Chief of the Fire Department shall certify to the Board of Trustees on each and every payroll or in other manner as the Board of Trustees shall prescribe the amount deducted, and such amounts shall be paid into the members' savings fund and shall be credited to the individual account of the member from whose compensation the deduction was made. (1960 C., § 335.490; 1994 C., § 4.18.265; Ord. No. 49623, § 38, 1959.)

4.18.270 Member contribution—Refunds, additional benefits.

The Board of Trustees is authorized at its discretion to make refunds or grant additional benefits for parts of contributions as were made prior to the adoption of the eight-percent rate for all members which were in excess of the compulsory contributions re-

quired of each member. (1960 C., § 335.500; 1994 C., § 4.18.270; Ord. No. 57603(part), 1978; Ord. No. 49623, § 39, 1959.)

4.18.275 Member contribution—Cash payment or note.

A member as of January 1, 1960, who did not make contributions to the system between the operative date of the system and January 1, 1960, may make a cash payment or sign a note of indebtedness to the system. The amount of the payment or note in lieu thereof shall be equal to the then accumulated contributions for his age and years of service less any credit to his account and less any dues paid during the period for rights and privileges in the firemen's pension fund, and such amount shall be credited to his account. The unpaid balance of the note shall bear interest at the same rate per annum as is allowed on the member's savings accounts in the same periods. The note shall be repaid under rules and regulations of the Board of Trustees within five years of its date but not beyond the compulsory retirement date of the maker. If the note is not repaid by the due date, all amounts which have been paid on the note shall be refunded from the member's account and benefits shall be allowed thereafter as if the note had not been given. If any benefits become payable to the member or his beneficiary prior to the due date of the note and while any balance is unpaid, such benefits shall be reduced to the extent that the value of the reduction equals the unpaid balance of the note. (1960 C., § 335.510; 1994 C., § 4.18.275; Ord. No. 58179, § 1(part), 1980; Ord. No. 56444, § 1, 1973; Ord. No. 49623, § 40, 1959.)

City Counselor Ops.: 8780, 10262, 10438

4.18.280 Benefit reserve fund.

The benefit reserve fund shall be the fund from which shall be paid all benefits except such benefits as involve only the refund of the members contributions at time of withdrawal in which case the refund shall be made direct from the members saving fund. There shall be transferred to this fund at time of approval of payment of benefits to any member or beneficiary, the accumulated contributions of such member from the members' saving fund and such additional amount from the general reserve fund as is calculated by the actuary to be necessary with the member's contributions to provide the payment of all benefits arising from the service of the member. Upon the completion of the first valuation after the creation of this fund, there shall be transferred to it from the annuity reserve fund, the pension reserve fund and the pension accumulation fund such amounts as are certified by the actuary on the basis of the tables then in use for all beneficiaries receiving benefits. (1960 C., § 335.520; 1994 C., § 4.18.280; Ord. No. 49623, § 41, 1959.)

4.18.285 General reserve fund—City contributions.

The general reserve fund shall be the fund in which shall be accumulated all reserves for benefits not provided by member contributions, and which are provided by contributions made by the City. (1960 C., § 335.530; 1994 C., § 4.18.285; Ord. No. 49623, § 42, 1959.)

4.18.290 General reserve fund—Contributions and payments.

Contributions to and payments from the general reserve fund shall be as follows: On account of each member there shall be paid annually into the fund by the City an amount equal to a certain percentage of the earnable compensation of the member to be known as "the normal contribution" and an additional amount equal to a percentage of his earnable compensation to be known as "the accrued liability contribution." The rates percent of the contributions shall be fixed on the basis of the liability of the Retirement System as shown by actuarial valuations. (1960 C., § 335.540; 1994 C., § 4.18.290; Ord. No. 49623, § 43, 1959.)

4.18.295 General reserve fund—Normal contribution rate.

On the basis of the interest rate and of such mortality and other tables as shall be adopted by the Board of Trustees, the actuary shall determine the uniform and constant percentage of the earnable compensation of the average new entrant, which, if contributed throughout his entire period of active service, would be sufficient to provide for the payment of any death benefit or pension payable on his account. The rate percent so determined shall be known as "the normal contribution rate." After the accrued liability contribution has ceased to be payable the normal contribution rate shall be the rate percent of the earnable compensation of all members obtained by deducting from the total liabilities of the fund the amount of the funds in hand to the credit of the fund and dividing the remainder by one percent of the present value of the prospective future compensation of all members as computed

on the basis of the interest rate and the mortality and service tables adopted by the Board of Trustees. The normal rate of contribution shall be determined by the actuary after each valuation. (1960 C., § 335.550; 1994 C., § 4.18.295; Ord. No. 49623, § 44, 1959.)

4.18.300 General reserve fund—Accrued liability contribution rate.

At the first valuation after the effective date of these amendments the actuary engaged by the Board of Trustees shall compute the rate percent of the total earnable compensation of all members which is equivalent to three and one-half percent of the amount of the total unfunded benefit liability on account of all members and beneficiaries which is not dischargeable by the normal contribution made on account of such members during the remainder of their active service. The rate percent originally so determined shall be known as "the accrued liability contribution rate." (1960 C., § 335.560; 1994 C., § 4.18.300; Ord. No. 49623, § 45, 1959.)

4.18.305 General reserve fund—Amounts payable.

The total amount payable in each year to the general reserve fund shall be not less than the sum of the rates percent known as the normal contribution rate and the accrued liability contribution rate of the total compensation earnable by all members during the year, and the aggregate payment by the City shall be sufficient when combined with the amount in the fund to provide the retirement allowances and other benefits payable out of the fund during the then-current year. The City may contribute at any time from bond issue or other available funds an amount equal to the unfunded accrued liability as certified by the actuary in which event no further accrued liability contribution will be required or may contribute any lesser amount which will be used to proportionately reduce future accrued liability contributions. (1960 C., § 335.570; 1994 C., § 4.18.305; Ord. No. 49623, § 46, 1959.)

4.18.310 General reserve fund—Discontinuing liability contributions.

The accrued liability contribution should be discontinued as soon as the accumulated reserve in the general reserve fund shall equal the present value as actuarially computed and approved by the Board of Trustees, of the total liability of the fund, less the present value computed on the basis of the normal contribution rate then in force of the prospective normal contributions to be received on account of persons who are at that time members. The accrued liability contribution rate may be decreased by the Board of Trustees provided the reduced level rate does not require an amortization period extending beyond the year twenty hundred and ten (2010) for any accrued liability as of August 31, 1980. Subsequent to that date, any changes in the accrued liability by reason of changes in the benefits payable under the Retirement System, changes in the actuarial assumptions, or changes in the actuarial funding method are to be amortized over a period not exceeding thirty years from the date in which the additional accrued liabilities are recognized in the annual actuarial valuation of the System. (1960 C., § 335.580; 1994 C., § 4.18.310; Ord. No. 59018, § 10, 1983; Ord. No. 49623, § 47, 1959.)

4.18.315 Expense fund.

The expense fund shall be the fund to which shall be credited all money provided to pay the administration expenses of the Retirement System and from which shall be paid all the expenses necessary in connection with the administration and operation of the system. Annually the Board of Trustees shall estimate the amount of money necessary to be paid into the expense fund during the ensuing year to provide for the expense of operation of the Retirement System. Such estimate shall be provided by the Board of Trustees from interest and other earnings on assets of the Retirement System. In no event shall any expenses, including administrative expenses, incurred in the administration of the Firefighters' Retirement Plan or in the investment of any funds of the Firefighters' Retirement Plan be paid out of the Firemen's Retirement System. Such expenses shall be paid entirely from the Firefighters' Retirement Plan.

(1960 C., § 335.590; 1994 C., § 4.18.315; ; Ord. No. 71818, § 4, 3-7-2024; Ord. No. 53997, § 1, 1966; Ord. No. 49623, § 48, 1959.)

4.18.320 Certification of amounts due the general reserve fund.

On or before the first of March of each year the Board of Trustees shall certify to the proper City authorities the amount which will become due and payable during the year next following to the general reserve fund. The amount so certified shall be included by the City authorities in their annual budget estimate. The amount so certified shall be appropriated by the

City and transferred to the Retirement System for the ensuing year. (1960 C., § 335.600; 1994 C., § 4.18.320; Ord. No. 53997, § 1, 1966; Ord. No. 49623, § 49, 1959.)

4.18.325 Fund reserves.

The creation and maintenance of reserves in the general reserve fund and the maintenance of benefit reserves as provided for and the payment of all benefits granted under the provisions of this chapter are hereby made obligations of the City. (1960 C., § 335.610; 1994 C., § 4.18.325; Ord. No. 53997, § 1, 1966; Ord. No. 49623, § 50, 1959.)

4.18.330 Benefits exempt from taxes and attachments.

The right of any person to a benefit, any other right accrued or accruing to any person under the provisions of this chapter and the moneys in the various funds created under this chapter are hereby exempt from any tax of the state and shall not be subject to execution, garnishment, attachment any other process whatsoever and shall be unassignable except as in this

chapter specifically provided. (1960 C., § 335.620; 1994 C., § 4.18.330; Ord. No. 49623, § 51, 1959.)

4.18.335 Transfer of existing funds.

Chapter 25 of the Revised Code of the City of St. Louis, 1948, as amended, is repealed and the firemen's pension fund heretofore created by said Chapter under authority of RSMo 86.480 to 86.630, inclusive, (1949), is dissolved and the City Treasurer is directed to transfer the cash securities and other assets of the said fund as of January 1, 1960, to the Firemen's Retirement System of St. Louis, hereby created and established to be credited to the Pension Accumulation Fund and to be used for all purposes of such fund. (1960 C., § 335.630; 1994 C., § 4.18.335.)

4.18.340 Initial appropriation.

There is appropriated for the use of the Firemen's Retirement System of St. Louis the sum of $10,000.00, which shall be paid to the expense fund. (1960 C., § 335.640; 1994 C., § 4.18.340.)

4.18.345 Amendment and repeal.

The City reserves the right to amend or repeal this chapter at any time. (1960 C., § 335.650; 1994 C., § 4.18.345.)

4.18.350 Reserved.

Editor's Note:

The former § 4.18.350 which pertained to the required funding amount and derived from Ord. No. 61980, § 1, 1990, expired on Jan. 1, 1995.

4.18.351 Cost of living benefits—Retirees, surviving spouses and dependent children.

A. Any person who served as a fireman who is retired and not receiving a cost-of-living benefit and any widow or dependent child receiving retirement benefits, but not receiving a cost-of-living benefit, shall be made, constituted, and appointed as a special consultant on the problems of retirement, aging, and other state matters, and be available to give opinion in writing or orally, in response to such requests as may be required and for such services shall be compensated annually in accordance with the provisions of Subsection B of this section.

B. Effective September 1, 1996, and annually thereafter, one-half of the annual interest earned in the future benefits fund created under RSMo 87.287 shall be appropriated to provide an ad hoc COLA administered by the Board of Trustees and from September 1, 2016, and annually thereafter three-fourths of the annual interest earned in the future benefits fund created under RSMo 87.287 shall be appropriated to provide an ad hoc COLA administered by the Board of Trustees based upon the following formula:

The distributable amount shall be divided by the number of retirees and surviving spouses and dependent children eligible to receive the ad hoc COLA under this provision calculated and distributed based upon the following years of service:

1. Members retiring with thirty or more years of service shall receive a full share of the distributable amount;

2. Members retiring with twenty-five or more years of service but less than thirty years shall receive a three-quarter share of the distributable amount;

3. Members retiring with less than twenty-five years shall receive a one-half share of the distributable amount;

4. Surviving spouses and dependent children shall receive one-half of the ad hoc COLA the member would have been entitled to receive. (1994 C., § 4.18.351; Ord. No. 63591, § 6, 1995.)

4.18.355—4.18.385 Reserved.

Editor's Note:

The former §§ 4.18.355—4.18.385 which pertained to the required funding amount and derived from Ord. No. 61980, §§ 2—4 and 6—9, 1990, expired on Jan. 1, 1995.

4.18.386 Accumulated sick leave.

A. Any employee who is member of the firemen's retirement system (hereinafter "member") and who retires in accordance with the provisions of Chapter 4.18 of the Revised Code, after working continuously for the Fire Department until reaching retirement age, but not including retirement for service connected disability, shall be credited with all of the member's unused accumulated sick leave as certified by the City of St. Louis Department of Personnel.

Notwithstanding anything to the contrary contained herein, for purposes of the calculations of benefits set forth in the ordinance codified in this chapter, a member's sick leave balance at the time of retirement shall not exceed the member's sick leave balance on September 20, 2010 less sick leave hours used by the

member prior to retirement, and such sick leave balance shall not include any portion of the member's medical leave balance.

Notwithstanding anything to the contrary contained herein, no member hired by the City after the effective date of the ordinance codified in this chapter shall have any portion of his or her sick leave balance or medical leave balance used in determining such future member's benefits or payments at time of retirement.

B. When calculating years of service, each such member shall be entitled to one day of creditable service for each day of unused accumulated sick leave certified by the Department of Personnel pursuant to Subsection A hereof.

C. Unused accumulated sick leave certified by the Department of Personnel pursuant to Subsection A hereof shall allow a member to vest in the firemen's retirement system by using such unused accumulated sick leave as certified by the Department of Personnel to reach the time of vesting and shall also allow a member to exceed a seventy-five percent service retirement allowance by adding unused accumulated sick leave certified by the Department of Personnel pursuant to Subsection A hereof to no more than thirty years of creditable service or a member who is participating in a DROP program may elect upon retirement to have placed in his or her DROP account a dollar amount equal to his or her unused accumulated sick leave hours, as certified by the Department of Personnel pursuant to Subsection A hereof, multiplied by his or her hourly rate of pay at the time of retirement, or to place one-half of this dollar amount in the member's DROP account, have one-fourth of the dollar amount added to the member's average final compensation, and to have the remaining one-fourth of this dollar amount remain as time and added to the member's creditable service. (1994 C., § 4.18.386; Ord. No. 68746, § 1, 9-20-2010; Ord. No. 68745, § 1, 9-20-2010; Ord. No. 65541, § 2, 2002; Ord. No. 64923, § 2, 1999; Ord. No. 63591, § 7, 1995.)

Cases:

City lawfully repealed prior firemen's retirement plan, freezing vested benefits, and adopted a new plan to decrease costs in the future. *Firemen's Retirement System v. City of St. Louis*, 22nd Cir. Nos. 1222-CC02916/1322-CC00006, aff'd mem., 451 S.W.3d 714 (Mo.App.E.D. 2014).

Chapter 4.19

FIREFIGHTERS' RETIREMENT PLAN

Sections:

4.19.010	**Establishment of the plan.**
4.19.020	**Definitions.**
4.19.030	**Eligibility and contributions.**
4.19.040	**Service.**
4.19.050	**Retirement benefits.**
4.19.060	**Grandfathered pension benefits.**
4.19.070	**Disability income.**
4.19.080	**Death benefits.**
4.19.090	**Limitations of benefits.**
4.19.100	**Payment of benefits.**
4.19.110	**Special payment rules.**
4.19.120	**Funding.**
4.19.130	**Trust fund investments.**
4.19.140	**Administration—Powers and duties of Trustees.**
4.19.150	**Claims and review procedure.**
4.19.160	**Amendment.**
4.19.170	**Miscellaneous.**

4.19.010 Establishment of the plan.

A. *Establishment of Plan.* Pursuant to its authority under the home rule charter provisions of the Constitution of the State of Missouri and the laws of the State of Missouri, the City of St. Louis hereby establishes the pension plan prescribed in this chapter, known as the Firefighters' Retirement Plan (the "plan"), to provide retirement, disability and death benefits for the firefighters of the City and their covered dependents.

B. *Structure of Plan.* The provisions of Section 4.19.050.A through G govern pension benefits accrued by participants hired on and after the effective date. The amount of the accrued benefit of participants under the Firemen's Retirement System of St. Louis pursuant to Chapter 4.18 of the Revised Code (the "prior plan") was frozen as of February 1, 2013 by Ordinance 69149, as amended by the ordinance codified in this chapter. The amount of the benefit accrued under the prior plan for a participant whose benefit accrued under the prior plan was frozen as of February 1, 2013 does not increase because of years of service after the Effective Date. Except as expressly provided herein, the provisions of Section 4.19.060.A through F,

governing pension benefits of grandfathered participants, are independent of the provisions of Section 4.19.050.A through G relating to participants hired on and after the effective date. The benefit accrued under this plan is earned only because of years of service after the effective date (although vesting, eligibility for retirement and the rate of accrual for benefits attributable to years of service after the effective date is based on total years of service as a firefighter with the City of St. Louis).

Notwithstanding anything to the contrary, no participant of the FRP shall receive a pension or retirement allowance from any other pension or retirement system supported wholly or in part by the City or the State of Missouri because of years of service for which they are entitled to benefits under the FRS nor shall they be required to make contributions under any other pension or retirement system of the City or the State of Missouri.

C. *Type of Plan.* This plan and the trust established pursuant to this plan are intended to qualify under Sections 401(a) and 501(a) of the Internal Revenue Code of 1986, as amended from time to time.

D. *Effective Date.* This chapter is effective February 1, 2013. (1994 C., § 4.19.010; Ord. No. 70248, §§ 3, 4, 3-22-2016; Ord. No. 69353, §§ 3—5, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.020 Definitions.

A. Accrued Benefit. The amount from time to time payable to a participant in the form of a single life annuity beginning on the normal retirement date of the participant determined in accordance with the plan, as if the participant had incurred a termination of employment at such time.

B. Actuarial Equivalent. The actuarial equivalent amount for benefit form options and reduced retirements determined on the basis of the RP 2000 combined healthy mortality projected to 2015 (static table) Mortality Table and an assumed annual rate of investment return of 7.625%.

For all other actuarial equivalent calculations, the actuarial equivalent amount determined on the basis of the RP 2000 combined healthy mortality, projected to 2015 (static table) Mortality Table and an assumed annual rate of investment return of 7.625%, or on the basis of such mortality tables and interest rate as shall be adopted by the Board of Trustees upon recommendation of the Plan's Actuary and applied prospectively.

C. Accumulated Contributions. The sum of all amounts deducted from the compensation of a participant and credited to his individual account, together with interest thereon, less any previous withdrawals from such account.

D. Actuary. An actuary, enrolled by the Joint Board for the Enrollment of Actuaries, selected by the Board of Trustees.

E. Annuity Starting Date. The first day of the first period for which an amount (other than a disability benefit payable under Section 4.19.070) is paid in accordance with the plan.

F. Average Final Compensation or Average Final Earnings. The average final compensation, also referred to as the average final earnings, of the participant during his last five years of covered employment; or if he has less than five years of such service, the average final compensation paid during his entire period of covered employment. The final average compensation of a grandfathered participant shall be based on the last two years of covered employment, instead of the last five years. Compensation means the regular annual rate of compensation that a participant would earn on the basis of the stated compensation for his rank or position.

G. Board of Aldermen. The Board of Aldermen of the City.

H. Board of Trustees. The Board of Trustees provided for in Section 4.19.130 to hold and invest the assets of the Trust Fund.

I. City. The City of St. Louis, Missouri.

J. Code. The Internal Revenue Code of 1986. Reference to a section of the Code shall include that section and any comparable section or sections of any future legislation that amends, supplements or supersedes said section.

K. Consumer Price Index. The consumer price index (United States Average Index) for urban consumers, or its successor index approved by the Board of Trustees, as defined and officially reported by the U.S. Department of Labor. The cost of living factor shall be the change in the specified CPI for the applicable 12-month period set by the Board of Trustees for the purpose of promoting consistency with the Consumer Price Index used by the Firemen's Retirement System of St. Louis, rounded to the nearest one-tenth of one percent.

L. Covered Employment. All service performed for the Fire Department of the City for which an

employee is compensated while a participant and while classified by the Fire Department as an employee performing services as a firefighter (without regard to any retroactive reclassification).

M. Early Retirement Age. The date on which a participant completes at least twenty years of service.

N. Early Retirement Date. The first day of the month next following the date the participant incurs a termination of employment after his early retirement age but before his normal retirement age.

O. Effective Date. The date specified in Section 4.19.010.

P. Employee. Any officer or employee of the Fire Department of the City employed by the City for the duty of fighting fires, but does not include anyone employed in a clerical or other capacity not involving firefighting duties.

Q. Full-Time Student. A person enrolled in a degree program at a college, university, community college, or vocational or technical school with a schedule of at least twelve hours per semester.

R. Grandfathered Participant. A participant who was employed on the day before the effective date and whose benefit accrued under the prior plan was frozen as of February 1, 2013.

S. Interest. The short-term applicable federal rate, as published by the Internal Revenue Service for the December immediately preceding the calendar year, for the purpose of interest for each calendar year for refund of accumulated contributions.

T. Normal Retirement Age. The date on which a participant first attains fifty-five years of age.

U. Normal Retirement Date. The first day of the month next following the date the employee incurs a termination of employment after his normal retirement age and after completing at least twenty years of service.

V. Participant. An employee hired on or after the effective date and an employee who was employed on the day before the effective date and whose benefit accrued under the prior plan was frozen as of February 1, 2013, either of whom shall have become entitled to participate in this plan in accordance with Section 4.19.030.A and who continues to have rights to benefits under this plan, or whose beneficiaries may be eligible to receive benefits under this plan.

W. Plan. The Firefighters' Retirement Plan, the terms and provisions of which are set forth in this chapter, as amended from time to time.

X. Plan Year. The twelve-month period beginning October 1.

y. Retirement Date. The first day as of which a retirement benefit is payable to a participant in accordance with this plan, and may be either a normal retirement date or an early retirement date.

Z. Termination of Employment. Separation from the service of the City.

AA. Trust Agreement. The trust agreement entered into between the City and the trustee in accordance herewith for the purpose of holding and investing the trust fund.

BB. Trust Fund. The trust fund as described in Section 4.19.120.A hereof.

CC. Trustee or Trustees. The person or persons serving as trustee of the trust fund or any successor(s) thereto; provided that, to the extent that the trust fund is invested in an annuity contract, the insurance company shall be the Trustee.

DD. Widow(er). The person to whom the participant is lawfully married at throughout the one-year period ending at the death of the participant, provided that a former spouse will be treated as the widow(er) to the extent provided under a qualified domestic relations order as described in Section 414(p) of the Code. A domestic partner shall not be treated as a widow(er) for purposes of Sections 4.19.100.B (required minimum distributions), 4.19.110.C (domestic relations orders) and 4.19.110.D (rollovers).

A surviving domestic partner shall be deemed to be a widow(er). A surviving domestic partner means a person validly registered with the City as a domestic partner with the participant in accordance with St. Louis City Ordinance 64401 throughout both the one-year period ending at the time benefit payments to the participant from this plan commenced and the one-year period ending at the death of the participant, and with respect to whom it is substantiated in writing that such person and the participant satisfied as least two of the following indicia of economic interdependence as of the date of death of the participant:

1. Joint ownership of real property or a common leasehold interest in real property;

2. Common ownership of an automobile;

3. An open joint bank account or credit account;

4. A will designating the other person as the primary beneficiary;

5. A current designation of the other person as the primary beneficiary for life insurance or retirement benefits;

6. A current designation of the other person as durable power of attorney or health care power of attorney; and

7. A driver's licenses listing a common address. (1994 C., § 4.19.020; Ord. No. 70248, §§ 5—8, 3-22-2016; Ord. No. 69353, §§ 6—8, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.030 Eligibility and contributions.

A. *Entry Date.* An employee hired on and after the effective date shall be eligible to participate in the plan on the first day such employee is employed in covered employment. An employee who was employed on the day before the Effective Date, and whose benefit accrued under the Prior Plan was frozen as of February 1, 2013, shall be eligible to participate in this plan beginning February 1, 2013.

B. *Employee Contributions.* The Board of Trustees shall certify to the Fire Commissioner, and the Fire Commissioner shall cause to be deducted from the compensation of each participant each pay period, and remitted to the Trustee, eight percent of the compensation of each participant with at least twenty full years of service as of the effective date, and nine percent of the compensation of each participant with fewer than twenty full years of service as of the effective date. Such contributions shall be credited to the accumulated contributions account of the participant. Contributions by each participant with fewer than twenty full years of service as of the effective date shall be treated as employer before-tax ("pick-up") contributions paid by the employer in lieu of contributions by the employee under Section 414(h)(2) of the Code solely for purposes of the Internal Revenue Code of 1986, as amended. Contributions by participants with at least twenty full years of service as of the effective date shall be treated as after-tax employee contributions.

The deductions provided for herein shall be made notwithstanding that the minimum compensation provided by law for any participant shall be reduced thereby. Every participant shall be deemed to consent to the deductions made and provided for herein, and payment of salary or compensation less the deduction shall be a full and complete discharge and acquittance of all claims and demands whatsoever for services rendered during the period covered by the payment except as to benefits provided by this plan.

C. *Exclusive Plan.* All employees shall be participants as a condition of their employment and shall receive no pension or retirement allowance from any other pension or retirement system supported wholly or in part by the City or the state because of years of service for which they are entitled to benefits under this plan, nor shall they be required to make contributions under any other pension or retirement system of the City or the state. (1994 C., § 4.19.030; Ord. No. 70248, § 9, 3-22-2016; Ord. No. 69353, §§ 9, 10, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.040 Service.

A. *Year of Service.* The term "year of service," means each full 365-consecutive-day period of time that elapses from the effective date, or the date the employee first performs duties in covered employment for which such employee is paid or entitled to payment by the City, whichever is later, and ending on the date of termination of employment, during which the employee is employed in covered employment. Less than whole periods of such time shall be credited as a partial year based on the applicable portion of a 365-day period; and nonconsecutive periods of such time shall be aggregated, where applicable, in determining the number of years of service of a participant. The period of service of an employee on an approved paid leave of absence shall continue until the end of such leave of absence. An employee shall be credited for no more than one month for an unpaid leave of absence.

B. *Prior Plan Service.* Complete and partial years of service credited for a grandfathered participant pursuant to the terms of the prior plan for periods before the effective date shall count as years of service under this plan (but benefits attributable to such prior plan service under this plan shall be offset by the benefits payable under the Firemen's Retirement System of St. Louis, as provided in Section 4.19.060.G, so that the benefit accrued under this plan is earned only because of years of service after the effective date, although vesting, eligibility for retirement and the rate of accrual for benefits attributable to years of service after the effective date is based on total years of service).

Notwithstanding the above, service credited pursuant to the terms of the prior plan for periods before the effective date shall not count as years of service under this plan to the extent a participant did not receive a periodic retirement income benefit from the prior plan based on such service (e.g., a participant with fewer

than twenty years of service received a refund of contributions withheld from compensation attributable to such service in lieu of a pension).

C. *Absence in Military Service.* If, at any time since first becoming a participant in the Plan, a participant has performed qualified military service as defined by 26 U.S.C. § 414(u)(5) and has subsequently been reinstated as a firefighter within the period of time required by 38 U.S.C. § 4312(e), he shall be granted credit for such service as if his service in the Fire Department of the City had not been interrupted by his induction into the armed forces of the United States, and as if he had made the required contributions during such service.

In the case of a participant who dies while performing qualified military service as defined in 26 U.S.C. § 414(u)(5), the survivors of the participant are entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) that would have been provided under the Plan had the participant resumed employment and then terminated employment on account of death. In any event, a deceased member's period of qualified military service must be counted for vesting purposes.

Only to the extent required by Code Section 414(u)(12) and only in the event that the City elects to pay differential wage payments, an individual who receives differential wage payments (as defined under Code Section 3401(h)(2)) shall be treated as employed by the Fire Department of the City, and the differential wage payment shall be treated as compensation for purposes of applying the limits on annual additions under Code Section 415(c). This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.

D. *Accumulated Contributions.* An employee shall not be credited for any service with respect to which the employee had no contributions withheld; and shall not be credited for any service with respect to which the employee withdrew or received a refund of accumulated contributions.

E. *Allocation and delegation procedures.* The Board of Trustees may appoint one or more of its members to carry out any particular duty or duties or to execute any and all documents on its behalf. Any documents so executed shall have the same effect as though executed by all the members. Such appointments shall be made by an instrument in writing that specifies what duties and powers are so allocated and to whom each such duty or power is so allocated. The Board of Trustees may delegate to any agents (including the Trustee) such duties and powers, both ministerial and discretionary, as it deems appropriate, by an instrument in writing which specifies which such duties are so delegated and to whom each such duty is so delegated.

F. *Purchase of Creditable Service.* A participant may contribute or have transferred to the fund an amount to be utilized to purchase an additional period of creditable service determined using the accepted actuarial methods of the Plan in accordance with the provisions of RSMo 105.691, as amended, or as the same may from time to time be amended, and pursuant to policies adopted by the Board of Trustees, which are incorporated herein by reference. In addition, participants may purchase credible service for an amount determined using the actuarial methods of the plan pursuant to policies adopted by the Board of Trustees, which are incorporated by reference and may be amended from time to time.

(1994 C., § 4.19.040; Ord. No. 70248, §§ 10—12, 3-22-2016; Ord. No. 69353, § 11, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.050 Retirement benefits.

A. *Normal retirement benefit.* Subject to the conditions and limitations of the plan, a participant who incurs a termination of employment on or after his normal retirement age and after completing at least twenty (20) years of service will be entitled to a monthly retirement income payable to the participant for his lifetime commencing at his normal retirement date in an amount equal to two (2) percent of the participant's average final compensation for each year of service up to twenty-five (25) years, and two and one-half (2.5) percent of the participant's average final compensation for each year of service over twenty-five (25) years, up to a maximum of seventy-five (75) percent of average final compensation. The monthly amount of the retirement income of such a participant shall not be increased actuarially to reflect an annuity starting date deferred beyond the normal retirement age of the participant.

B. *Early retirement.* Each participant who incurs a termination of employment after completing at least twenty (20) years of service, but before completing thirty (30) years of service and before attaining his normal retirement age of fifty-five (55), shall be entitled to a monthly retirement benefit income payable to

the participant for his lifetime commencing on the first day of the month after he attains fifty-five (55) years of age, calculated as for normal retirement in accordance with Section 4.19.050.A, based on his average final earnings and his years of service as of his early retirement date.

In lieu of a deferred retirement income commencing at age fifty-five (55), a Participant who remains an employee until his early retirement age may elect to receive his retirement income beginning on his early retirement date; or on the first day of any month thereafter prior to age fifty-five (55), provided that the monthly amount payable at age fifty-five (55) shall be actuarially reduced from age fifty-five (55) to the pension commencement date in accordance with Section 4.19.020.B.

A participant entitled to an early retirement pension in accordance with the preceding paragraphs of this Subsection B may elect to receive a refund of his accumulated contributions with interest in lieu of any early retirement pension benefit.

C. *Vested terminated pension.* Each participant who remains an employee until he has completed at least ten (10) but fewer than twenty (20) years of service shall be entitled to a monthly retirement income calculated as for normal retirement in accordance with Section 4.19.050.A, based on his average final earnings and his years of service as of his termination of employment, payable to the participant for his lifetime commencing when the participant attains sixty-two (62) years of age, or upon his termination of employment, if later.

A participant entitled to a deferred vested pension in accordance with the preceding paragraph of this Subsection C may elect to receive a refund of his accumulated contributions with interest in lieu of any deferred vested pension benefit.

D. *Unvested participant.* A participant who incurs a termination of employment before completing ten (10) years of service shall receive a refund of his accumulated contributions with interest in lieu of any pension benefit.

E. *Cost of living increases.* Following a participant's annuity starting date, benefits paid to such participant pursuant to Subsections A and B of this section (but not any other provisions) shall be increased as of each October 1, with the first increase in the October following his retirement and subsequent increases in each October thereafter, by an amount equal to the lesser of three (3) percent or the increase in the Consumer Price Index during the preceding twelve-month period as designated by the Board of Trustees for the purpose of promoting consistency with the Consumer Price Index used by the Firemen's Retirement System of St. Louis; up to a maximum aggregate increase of twenty-five (25) percent.

F. *Limitation on compensation.* Notwithstanding any other provision of this plan, in no event shall the compensation of a participant taken into account under this plan for any plan year exceed the maximum amount permitted in Section 401(a)(17) of the Code for that plan year, as adjusted from time to time, as applicable to governmental plans. If the period for determining compensation in a plan year is less than the full plan year, the maximum amount for that plan year shall be reduced proportionately.

G. *Overpayment recoupment.* In the event a participant is paid more than the amount to which the participant is properly entitled under the terms of the plan the amount of future payments from the plan to the participant may be reduced until such overpayment has been corrected.

H. *Felony bar.* Participants found guilty of certain felony offenses shall be barred from obtaining benefits to the extent provided by the provisions of RSMo 105.669, as amended.

(1994 C., § 4.19.050; Ord. No. 71807, § 1, 3-13-2024; Ord. No. 70248, §§ 13, 14, 3-22-2016; Ord. No. 69245, § 2, 7-29-2012.)

4.19.060 Grandfathered pension benefits.

A. *Grandfathered benefits—General.* The provisions of this section apply only to grandfathered participants. The amount of retirement income benefits accrued under this section is based on all service and compensation, including years of service rendered and compensation paid before the effective date, but is offset by benefits payable under the Firemen's Retirement System of St. Louis, as provided in Subsection G of this section, so that the benefit accrued under this plan is earned only because of years of service after the effective date, although vesting, eligibility for retirement and the rate of accrual for benefits attributable to years of service after the effective date is based on total years of service.

B. *Reserved.*

C. *Grandfathered normal retirement benefit.* Subject to the conditions and limitations of the Plan, a grandfathered participant who incurs a termination of employment on or after his normal retirement age of

fifty-five (55) years and after completing at least twenty (20) years of service will be entitled to a monthly retirement income payable to the participant for his lifetime commencing at his normal retirement date in an amount equal to two (2) percent of the participant's average final compensation for each year of service up to twenty-five (25) years, and five (5) percent of the participant's average final compensation for each year of service over twenty-five (25) years, up to a maximum of seventy-five (75) percent of average final compensation. The monthly amount of the retirement income of such a participant shall not be increased actuarially to reflect an annuity starting date deferred beyond the normal retirement age of the participant.

Solely for purposes of computing such grandfathered benefit, sick leave accumulated under the FRS shall be credited as years of service and added to no more than a total of thirty (30) years of service for purposes of vesting and to allow such a participant to receive a monthly retirement income benefit in excess of seventy-five (75) percent of average final compensation. Notwithstanding anything to the contrary herein, sick leave of a participant who is participating in DROP shall be subject to the provisions of Subsection E of this section.

A grandfathered participant who receives such a retirement income benefit shall receive a refund of his contributions to this plan, without interest; provided that contributions to the plan made on and after the effective date by a participant who had fewer than twenty (20) full years of service as of the effective date are not refundable. All refundable contributions are payable at the time of his pension commencement date.

D. *Early retirement benefit.* A grandfathered participant who incurs a termination of employment after completing twenty (20) years of service, but before completing thirty (30) years of service and before attaining his normal retirement age of fifty-five (55) years, shall be entitled to a monthly retirement income payable to the participant for his lifetime commencing on the first day of the month after he attains fifty-five (55) years of age, calculated as for normal retirement in accordance with the preceding subsection, based on his average final compensation and his years of service as of his termination of employment. In lieu of a deferred retirement income commencing at age fifty-five (55), such a participant may elect to receive his retirement income beginning on his termination of employment; or on the first day of any month thereafter prior to age fifty-five (55). The monthly amount otherwise payable at age fifty-five (55) that is attributable to years of service after the effective date shall be actuarially reduced from age fifty-five (55) to the pension commencement date in accordance with Section 4.19.020.B for a participant with fewer than twenty (20) full years of service as of the effective date. The monthly amount otherwise payable at age fifty-five (55) to a participant with more than twenty (20) full years of service as of the effective date shall be unreduced.

Solely for purposes of computing such grandfathered benefit, sick leave accumulated under the FRS shall be credited as years of service and added to no more than a total of thirty (30) years of service for purposes of vesting and to allow such a participant to receive a monthly retirement income benefit in excess of seventy-five (75) percent of average final compensation. Notwithstanding anything to the contrary herein, sick leave of a participant who is participating in DROP shall be subject to the provisions of Subsection E of this section.

A grandfathered participant who receives such a retirement income benefit shall receive a refund of his contributions to this Plan, without interest; provided that contributions to the Plan made on and after the effective date by a participant with fewer than twenty (20) years of service as of the effective date are not refundable. All refundable contributions are payable at the time of his pension commencement date.

For example, a participant with ten (10) years of service on the effective date, who retires ten (10) years after the effective date, at age fifty (50) with a total of twenty (20) years of service, with annualized average final compensation of $80,000.00 for the last two (2) years before retirement, would be entitled to a deferred pension benefit of thirty-two thousand dollars ($32,000.00) (forty (40) percent of eighty thousand dollars ($80,000.00)) per year beginning at age fifty-five (55), or an immediate pension beginning at age fifty (50) of twenty-six thousand two hundred seventy-two dollars ($26,272.00). (The sixteen thousand dollars ($16,000.00) attributable to the ten (10) years of service before the effective date is unreduced; the sixteen thousand dollars ($16,000.00) attributable to the ten (10) years of service after the effective date is actuarially reduced from sixteen thousand dollars ($16,000.00) to ten thousand two hundred seventy-two dollars ($10,272.00).) Such amount is subject to the offset for the prior plan benefit as provided in Subsection G of this section.

A grandfathered participant who incurs a termination of employment before completing twenty (20) years of service shall receive a refund of his accumulated contributions with interest in lieu of any pension benefit.

E. *DROP.* Grandfathered participants who have completed at least twenty (20) years of service may elect to continue active employment and defer receipt of the retirement benefit for a period not to exceed five (5) years. Any grandfathered participant who has at least twenty (20) years of service may elect in writing before retirement to participate in the deferred retirement option program ("DROP"). A grandfathered participant electing to participate in the DROP program shall continue in active employment and shall not receive any direct retirement benefit payments during the time of participation. Upon the start of participation in the DROP program, the grandfathered participant shall make contributions at the rate of one (1) percent of compensation, instead of the contribution rate required by Section 4.19.030.B. During the period of participation in the DROP program, the amount that the grandfathered participant would have received as a monthly retirement income benefit (normal retirement benefit under Subsection C or reduced early retirement benefit under Subsection D, whichever is applicable) shall accumulate for the grandfathered participant until the grandfathered participant retires, unless the grandfathered participant has completed thirty (30) years of service, in which case he will receive a normal retirement benefit under Subsection C regardless of age. Years of service earned during the period of participation in the DROP program shall not be credited and shall not be counted in determination of any service-based retirement benefit.

A grandfathered participant who elects to stop participation in the DROP program shall make contributions at the rate of eight (8) percent of the compensation of each participant with at least twenty (20) full years of service as of the effective date, and nine (9) percent of the compensation of each participant with fewer than twenty (20) full years of service as of the effective date. Service rendered after restoration of the grandfathered participant to non-DROP participation status shall be counted as years of service. No grandfathered participant ending participation in the DROP program and returning to non-DROP participation status shall make any withdrawal from his or her DROP accumulation until after termination of employment. If after return to non-DROP participation status, a grandfathered participant retires, the grandfathered participant's retirement benefit shall be computed on the combination of the grandfathered participant's pre-DROP retirement benefit (based on average final compensation at the beginning of the DROP period and any applicable reduction for commencement before age fifty-five (55)) plus an additional benefit earned by the grandfathered participant after returning to non-DROP participation status. Post-DROP years of service shall be the only years used in computing the additional benefit; however, total years of service shall be used to determine the appropriate accrual level of additional benefit, two percent or five percent, for each year of post-DROP service. Upon retirement the grandfathered participant shall receive retirement income benefits plus the amount of his or her DROP accumulation. The grandfathered participant's DROP accumulation shall be payable, at the grandfathered participant's option, either as a lump sum payment or as a series of quarterly payments of reasonably equal amounts using the declining balance method over a period of fewer than ten years as selected by the grandfathered participant, subject to the minimum distribution rules of Section 4.19.100.B.

If a grandfathered participant dies before termination of employment while participating in the DROP program, his or her DROP accumulation shall be payable to the grandfathered participant's designated beneficiary under either of the following options:

1. A lump sum payment equal to the grandfathered participant's DROP accumulation shall be paid to the grandfathered participant's beneficiary or the grandfathered participant's estate. The death benefits for the beneficiary under the provisions of Section 4.19.080 shall be based on the grandfathered participant's compensation and years of service before the grandfathered participant's participation in the DROP program; or

2. The beneficiary may waive any claim to the grandfathered participant's DROP accumulation, in which case any death benefits payable to the beneficiary under the provisions of Section 4.19.080 shall be calculated as if the grandfathered participant had continued as an employee and had not participated in the DROP program. Any DROP accumulation which has been waived as provided in this paragraph shall become funds of the plan.

If a grandfathered participant who has elected to participate in the DROP program subsequently applies for and receives benefits for a disability benefit under the

provisions of Section 4.19.070, the grandfathered participant shall forfeit all rights, claims or interest in his DROP accumulation and the grandfathered participant's benefits shall be calculated as if the grandfathered participant had continued in employment and had not elected to participate in the DROP program. Any DROP accumulation which has been forfeited as provided in this plan shall become funds of the plan.

The balance of a grandfathered participant's DROP accumulation shall be credited with interest for each plan year under one (1) of the following two options, as elected by the grandfathered participant upon entering DROP: (1) the rate of return of the trust fund's investment portfolio, as certified annually by the actuary in the yearly evaluation report, for the preceding plan year, as approved by the trustees, subject to a minimum rate of return of zero (0) percent; or (2) the rate of return equal to the yield on the ten-year treasury bond as of the end of the preceding plan year, subject to a minimum rate of return of zero (0) percent.

Interest shall be credited annually to the grandfathered participant's DROP accumulation beginning with the start of the second plan year of participation, based on the balance at the beginning of the plan year. If a withdrawal occurs during a plan year, interest will be determined pro rata for each partial plan year before and after the withdrawal.

No participant may elect to participate in the DROP program more than once.

Notwithstanding anything to the contrary in this Chapter, a grandfathered participant who is participating in the DROP program may elect upon termination of employment to have added to his or her DROP accumulation a dollar amount equal to the number of his sick leave hours accumulated under the FRS multiplied by his or her hourly rate of pay at the time of termination of employment, net of the amount, if any, required to be withheld as taxes by the applicable governmental authorities; or to add one-half of such dollar amount in the grandfathered participant's DROP accumulation, to add one-quarter of such dollar amount to the aggregate total of the grandfathered participant's monthly compensation for the period used in calculating the grandfathered participant's average final compensation, and to have the remaining one-fourth of such sick leave remain as time and added to the grandfathered participant's years of service before the effective date. A grandfathered participant may make such an election to have sick leave hours converted to a combination of DROP accumulation, years of service and average final compensation only if the participant made a comparable election under The Firemen's Retirement System of St. Louis; and a grandfathered participant who made such an election under The Firemen's Retirement System of St. Louis shall be deemed to have made such an election under this Plan; so that the DROP benefit payable from this Plan shall be paid in the same form as the benefit payable under The Firemen's Retirement System of St. Louis.

F. *Cost of living increases.* The grandfathered benefit payable in accordance with Subsections C, D and E of this section shall be increased annually, as approved by the Board of Trustees beginning with the first increase in the October following retirement of the participant and subsequent increases in each October thereafter, at the rates designated as follows:

1. One and one-half (1.5) percent per year, compounded each year, up to age sixty (60) for those retiring with at least twenty (20) years of service but less than twenty-five (25) years of service,

2. Two and one-fourth (2.25) percent per year, compounded each year, up to age sixty (60) for those retiring with at least twenty-five (25) years of service but less than thirty (30) years of service,

3. Three (3) percent per year, compounded each year, up to age sixty (60) for those retiring with thirty (30) or more years of service,

4. After age sixty (60), five (5) percent per year for five (5) years or until a total maximum increase of twenty-five (25) percent is reached.

Each increase, however, is subject to a determination by the Board of Trustees that the consumer price index shows an increase of not less than the approved rate during the preceding twelve-month period as designated by the Board of Trustees for the purpose of promoting consistency with the Consumer Price Index used by the Firemen's Retirement System of St. Louis. If the increase is in excess of the approved rate for any year, the excess shall be accumulated as to any retired participant and increases granted in subsequent years subject to the maximum allowed for each full year from October following his retirement but not to exceed a total increase of twenty-five (25) percent. If the Board of Trustees determines that the index has decreased for any year, the benefits of any retired participant that have been increased shall be decreased but not below his initial benefit. No annual increase shall be made of

less than one (1) percent and no decrease of less than three (3) percent except that any decrease shall be limited by the initial benefit.

In addition to the above, grandfathered participants may share in ad hoc COLAs, if any, to which they would be entitled in accordance with the terms and conditions of the prior plan as if such terms and conditions were included in this plan.

G. *Prior plan benefit offset—No duplication rule.* Subsections 4.19.050.F and G shall apply to all benefits, including grandfathered benefits. Notwithstanding anything in this plan to the contrary, the retirement income benefit payable under this plan shall be offset by the amount of retirement income payable under the Firemen's Retirement System of St. Louis (and any other defined benefit plan maintained by the City of St. Louis that is qualified under Section 401 of the Code) to the extent that the benefit under such other plan or plans is based on years of service used as the multiplier (times a percent of compensation) for purposes of determining the retirement income benefit under this plan, so that the benefit accrued under this plan is earned only because of years of service after the effective date, although vesting, eligibility for retirement and the rate of accrual for benefits attributable to years of service after the effective date is based on total years of service. The retirement income benefit offset shall be computed as if the participant had received his retirement income under the offset plan in the form of a single life annuity commencing on the day benefits commence to be paid under this plan.

The benefit of a participant who enters DROP on or after February 1, 2013 shall be determined under this plan, based on all service, including prior plan service, but the benefit of such a participant shall be offset by the benefit payable under The Firemen's Retirement System of St. Louis, so that the benefit accrued under this plan is earned only because of years of service after the effective date. No member has accrued any sick leave benefits under this plan. The benefit under this plan of a grandfathered participant who elects to have sick leave hours converted shall be adjusted so that the aggregated total of each of such benefits payable by both this plan and the offset plan mirrors but does not exceed the amount of such benefits to which the participant would have received under this plan if all such service and compensation had been taken into account only by this plan.

Notwithstanding anything in this plan to the contrary, there shall be no duplication of any benefit under this plan of a benefit payable from The Firemen's Retirement System of St. Louis that is attributable to years of service for which a participant is entitled to an accrued benefit under the Firemen's Retirement System of St. Louis, no duplication of any death or disability benefit paid under the Firemen's Retirement System of St. Louis, and no duplication of any benefit under this plan attributable to accumulated sick pay, DROP, or any other factor credited under the Firemen's Retirement System of St. Louis.

(1994 C., § 4.19.060; Ord. No. 71807, §§ 2, 3, 3-13-2024; Ord. No. 70248, §§ 15—19, 3-22-2016; Ord. No. 69353, §§ 12—16, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.070 Disability income.

A. *Disability benefits—General.* The disability income provisions of Subsections B through H of this section apply to employees who permanently cease performance of duties as a firefighter on account of disability on or after the effective date. For purposes of such subsections, the term "participant" shall mean any Employee performing services as a firefighter on or after February 1, 2013, while so classified by the Fire Department.

B. *Disability—Line of duty.*

1. A participant who incurs a termination of employment because of a total and permanent disability resulting from bodily injury incurred while engaged in the actual performance of duty as a firefighter in response to an emergency call that renders the participant totally and permanently unable to engage in any gainful employment in any occupation, shall be entitled to receive a monthly disability income equal to seventy-five (75) percent of his average final compensation, while so disabled. A disability shall be presumed to have been incurred while engaged in the actual performance of duty as a firefighter in response to an emergency call to the extent the disability is caused by a disease specified by state pension law applicable to this Plan as establishing such a presumption, including, but not limited to, RSMo 87.006, as may be amended. Such presumption may be rebutted by evidence to the contrary, such as habitual smoking.

2. A participant who incurs a termination of employment because of a total and permanent disability resulting from bodily injury incurred while engaged in the actual performance of duty as a firefighter in re-

sponse to an emergency call that renders the participant totally and permanently unable to continue his employment as a firefighter, but not other gainful employment as described in Subsection B.1 of this section, shall receive a disability income while so disabled equal to twenty-five (25) percent of his average final compensation; plus an additional two and seventy-five one-hundredths (2.75) percent of average final compensation for each year of service in excess of ten (10) years, up to twenty-five (25) years of service; plus an additional eleven and five-tenths (11.5) percent of average final compensation for the twenty-fifth year of service at the time of such a termination of employment; with a maximum benefit of seventy-five (75) percent of average final compensation. A disability shall be presumed to have been incurred while engaged in the actual performance of duty as a firefighter in response to an emergency call to the extent the disability is caused by a disease specified by state pension law applicable to this plan as establishing such a presumption, including, but not limited to, RSMo 87.006, as may be amended. Such presumption may be rebutted by evidence to the contrary, such as habitual smoking.

Only grandfathered participants with at least twenty (20) years of service as of the effective date who receive such a disability benefit shall receive a refund of his contributions to this Plan, without interest; contributions to this Plan made by participants with fewer than twenty (20) years of service as of the effective date who receive such a disability benefit are not refundable. All refundable contributions are payable at the time of his disability commencement date.

C. *Disability—Other.* A participant who incurs a termination of employment after completing at least five (5) years of service because of a total and permanent disability that is not described in Subsection B (outside the line of duty) that renders the participant totally and permanently unable to engage in any gainful employment in any occupation shall be entitled to receive a monthly disability income equal to the greater of twenty-five (25) percent of his average final compensation or ninety (90) percent of the benefit accrued under the formula in Section 4.19.050.A as of the time of such a termination of employment, while so disabled.

Only grandfathered participants with at least twenty (20) years of service as of the effective date who receive such a disability benefit shall receive a refund of his contributions to this Plan, without interest; contributions to this Plan made by participants with fewer than twenty years of service as of the effective date who receive such a disability benefit are not refundable. All refundable contributions are payable at the time of his disability commencement date.

D. *Cost of living increases.*

1. Following commencement of disability income payments to a participant, benefits paid to such participant pursuant to Subsection B or C of this section shall be increased as of each October 1, with the first increase in the October following commencement of disability income payments and each October thereafter, by an amount equal to the lesser of three (3) percent or the increase in the Consumer Price Index during the preceding twelve-month period as designated by the Board of Trustees for the purpose of promoting consistency with the Consumer Price Index used by the Firemen's Retirement System of St. Louis; up to a maximum aggregate increase of twenty-five (25) percent.

2. Notwithstanding the provisions of Subsection D.1 of this section, in the case of a participant who incurs a termination of employment because of a total and permanent disability resulting from bodily injury incurred while the participant was engaged in the actual performance of duty as a firefighter in response to an emergency call that renders the participant totally and permanently unable to engage in any gainful employment in any occupation, following commencement of disability income payments to the participant, benefits paid to such participant pursuant to Subsection B of this section shall be increased as of each October 1, with the first increase in the October following commencement of disability income payments and each October thereafter, by three (3) percent per year, compounded each year up to age sixty (60); and after age sixty (60) by five (5) percent per year for five (5) years or until a total maximum increase of twenty-five (25) percent is reached; provided that each such increase is subject to a determination by the Board of Trustees that the consumer price index shows an increase of not less than the approved rate during the preceding twelve-month period as designated by the Board of Trustees for the purpose of promoting consistency with the Consumer Price Index used by the Firemen's Retirement System of St. Louis. If the increase is in excess of the approved rate for any year, the excess shall be accumulated as to any retired member and increases

may be granted in subsequent years subject to the maximum allowed for each full year from October following his retirement but not to exceed a total increase of twenty-five (25) percent. If the Board of Trustees determines that the index has decreased for any year, the benefits of any retired member that have been increased shall be decreased but not below his initial benefit. No annual increase shall be made of less than one percent and no decrease of less than three percent except that any decrease shall be limited by the initial benefit.

Notwithstanding anything to the contrary in the plan, grandfathered participants may share in ad hoc COLAs, if any, to which they would be entitled in accordance with the terms and conditions of the prior plan.

E. *Total and permanent disability.* An employee shall be deemed to be totally and permanently disabled when, on the basis of qualified medical evidence, he is found by the Disability Board to be totally and permanently prevented from performing the duties described in the applicable paragraph of Subsection B or C of this section.

F. *Discontinuance of Disability Benefits.* If, based on qualified medical advice, it is reasonably possible for a disabled beneficiary to recover for the condition that caused him to be totally and permanently disabled, once each year during the first five (5) years following the commencement of disability income, and once in every three-year period thereafter, the Disability Board shall require the disability beneficiary to undergo a medical examination to be made at a place designated by the Disability Board, and to be made by a physician or physicians designated by the Disability Board. Should any disability beneficiary refuse to submit to a medical examination, his disability income shall be discontinued until his withdrawal of the refusal, and if his refusal continues for one (1) year all rights in and to his disability income shall be revoked by the Disability Board.

Payment of disability benefits under this section shall be discontinued upon the earliest of the following:

1. The refusal of the participant to undergo a medical examination;

2. The time as of which the Disability Board finds the participant is no longer totally and permanently disabled; or

3. The death of the participant.

After the Disability Board finds the participant is no longer totally and permanently disabled and during such time as the participant is not receiving a disability benefit pursuant to this section, the participant shall be entitled to a pension benefit in the amount and at the time or times determined in accordance with Sections 4.19.050 and 4.19.060, as applicable, based on average final compensation and years of service at termination of employment.

G. *Adjustment of disability income.* If the disability beneficiary is engaged, or is able to engage, in a gainful occupation other than firefighter paying more than the difference between his disability income and the then-current rate of pay for the rank held by the participant at the time of retirement (indexed as described below), the amount of his disability income shall be reduced to an amount which together with the amount earnable by him in such other occupation shall equal the amount of such current rate of pay. If his earning capacity is later changed, the amount of his disability income may be further modified. The then-current rate of pay for the rank held by the participant at the time of retirement shall be increased as of each October 1, with the first increase in the October following commencement of disability income payments and each October thereafter, by an amount equal to the lesser of three (3) percent or the increase in the CPI (as defined in Subsection D of this section) for the previous calendar year; up to a maximum aggregate increase of twenty-five (25) percent.

A disabled beneficiary shall submit a copy his annual federal income tax return to the Disability Board for each calendar year for which the beneficiary is eligible of a disability benefit under this section. Payment of disability benefits of a beneficiary shall be discontinued if the beneficiary fails to submit a copy of his federal income tax return to the Disability Board by the fifteenth day of October immediately following the end of calendar year. Disability Board shall audit the validity of at least two (2) percent of such tax returns.

H. *Tuition Reimbursement.*

1. Except for a disability described in Subsection B.1 or C of this section, a participant receiving disability benefits under this section may receive reimbursement for educational tuition expenses for attending a college, university, community college, or vocational or technical school as a full-time student upon proof of payment to such institution in an amount not to exceed the tuition for a state resident at the University of Missouri—St. Louis. A participant receiving disability benefits shall apply for such tuition reimbursement no later than three years after the participant first becomes

entitled to a disability benefit under this Plan. Such right to reimbursement shall cease when the disabled participant ceases to be a full-time student, fails to provide verified proof of achievement of a grade point average of two on a four-point scale or the equivalent on another scale for each academic term, or if the disabled participant is restored to active service as a firefighter, but in no event shall such education reimbursement be available after the end of the five-year period beginning when the participant first becomes entitled to a disability benefit under this Plan.

2. Notwithstanding anything to the contrary in Subsection H.1 above, the Board of Trustees shall be authorized and are directed to amend the Plan by deleting and removing Subsection H.1 of this section in its entirety if the Internal Revenue Service determines that the terms contained in Subsection H.1 of this section prevent the plan from attaining qualified status. (1994 C., § 4.19.070; Ord. No. 71818, §§ 11, 12, 3-7-2024; Ord. No. 70248, §§ 20—24, 3-22-2016; Ord. No. 69353, §§ 17, 18, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.080 Death benefits.

A. *Active Participants.* Upon the receipt of proper proof of the death of a participant while an employee, or the death of a participant who incurred a termination of employment while in service and was receiving a retirement income benefit or a disability benefit at the time of his death, provided no other benefits are payable, there shall be paid a retirement allowance to the widow(er) of the participant during her or his widowhood of twenty-five percent of the deceased participant's average final compensation, or two hundred dollars per month, whichever is greater, plus ten percent of such compensation to or for the benefit of each unmarried dependent child of the deceased participant who is either under age eighteen or who is totally and permanently mentally or physically incapacitated regardless of age, but not in excess of three children, and paid as the Board of Trustees in its discretion directs. Any widow(er) who is receiving retirement benefits upon application to the Board of Trustees shall be made, constituted, appointed and employed by the Board as a special consultant on the problems of retirement, aging, and other state matters, during her or his widowhood, and upon request of the Board, give opinions, and be available to give opinions in writing, or orally, in response to such request, as may be required, and for such services shall be compensated monthly, in an amount, which when added to any monthly retirement benefits being received, shall not exceed fifty percent of the deceased participant's average final compensation or two hundred dollars ($200.00) whichever is greater. This compensation shall be consolidated with any other retirement benefits payable to such widow and shall be paid in the manner and from the same fund as her other retirement benefits under this chapter, and shall be treated in all aspects under the laws of this state as retirement benefits paid pursuant to this chapter.

If no widow(er) benefits are payable pursuant to this section, such total benefit as would have been paid had there been a widow(er) (twenty-five percent of compensation) shall be divided among the unmarried dependent children under age eighteen and such unmarried children, regardless of age, who are totally and permanently mentally or physically incapacitated, and paid to, or for the benefit of, each such child, as the Board of Trustees in its discretion directs, until the respective child attains the age of eighteen or is no longer incapacitated, whichever is applicable.

Any benefit payable to, or for the benefit of, a child or children under the age of eighteen years pursuant to this section shall be paid beyond the age of eighteen years through the age of twenty-five years in such cases where the child is a full-time student at a regularly accredited college, business school, nursing school, school for technical or vocational training or university, but such benefit shall cease whenever the child ceases to be a full-time student. A college or university shall be deemed to be regularly accredited which maintains membership in good standing in a national or regional accrediting agency recognized by any state college or university.

B. *Accidental Death in Line of Duty.* Upon the receipt of evidence and proof that a participant died as the result of an accident or exposure at any time, or place, provided that at such time or place the participant was in the actual performance of his duty as a firefighter and, in the case of an exposure, while in response to an emergency call, or was acting pursuant to orders, there shall be paid in lieu of all other benefits the following benefits:

1. A retirement income to the widow(er) during the person's widowhood of fifty percent of the deceased participant's average final compensation, plus ten percent of such compensation to or for the benefit of each unmarried dependent child of the deceased participant, who is either under the age of eighteen, or

who is totally and permanently mentally or physically incapacitated, regardless of age, but not in excess of a total of three children, including both classes, and paid as the Board of Trustees in its discretion directs.

2. If no widow(er) benefits are payable pursuant to Subsection B.1 of this section, the total income that would have been paid had there been a widow(er) shall be divided among the unmarried dependent children under the age of eighteen and such unmarried children, regardless of age, who are totally and permanently mentally or physically incapacitated, and paid to, or for the benefit of, each such child, as the Board of Trustees in its discretion directs, until the respective child attains the age of eighteen or is no longer incapacitated, whichever is applicable.

3. Any benefit payable to, or for the benefit of, a child or children under the age of eighteen years pursuant to Subsection B.1 and 2 of this section shall be paid beyond the age of eighteen years through the age of twenty-five years in such cases where the child is a full-time student at a regularly accredited college, business school, nursing school, school for technical or vocational training or university, but such benefit shall cease whenever the child ceases to be a student. A college or university shall be deemed to be regularly accredited which maintains membership in good standing in a national or regional accrediting agency recognized by any state college or university.

4. Wherever any dependent child designated by the Board of Trustees to receive benefits pursuant to this section is in the care of the widow(er) of the deceased participant, the child's benefits may be paid to the widow(er) for the child.

5. The widow(er) of a participant with at least twenty full years of service as of the effective date who receives such a death benefit shall receive a refund of the contributions of the participant to the plan, without interest.

The benefit of a widow(er) entitled to a death benefit in accordance with Subsection B.1 of this section whose participant spouse died on the scene of a fire as a direct and proximate cause of an accident that occurred while the participant was engaged in the actual performance of his duty as a firefighter shall be increased from fifty percent to sixty-two and one-half percent.

C. *Funeral Expenses.* In addition to any other death benefit to which a participant may be entitled, whenever an active or retired participant shall die, the Board of Trustees shall pay from the Trust a sum of two thousand dollars to the widow(er) or beneficiary of the participant for funeral expenses.

D. *Accumulated Contributions.* A beneficiary shall be repaid the total amount of the contributions to the plan, without interest, made by a deceased participant with at least twenty full years of service as of the effective date who died while employed in covered employment, upon receipt of proof of the death of the participant. (1994 C., § 4.19.080; Ord. No. 70248, §§ 25—27, 3-22-2016; Ord. No. 69353, §§ 19—22, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.090 Limitations of benefits.

Notwithstanding any other provisions of the Plan to the contrary, the member contributions paid to and retirement benefits paid from the plan shall be limited to such extent as may be necessary to conform to the requirements of Section 415 of the Code for a qualified pension plan pursuant to policies adopted by the Board of Trustees, which are incorporated herein by reference. (1994 C., § 4.19.090; Ord. No. 70248, § 28, 3-22-2016; Ord. No. 69245, § 2, 7-29-2012.)

4.19.100 Payment of benefits.

A. *Claim for Benefits.* No pension or other benefit shall be payable under this plan to any participant or beneficiary except as expressly provided for in this section. The Board of Trustees shall authorize payments under this plan.

No pension or other benefit shall be payable until the participant or beneficiary shall have filed a claim for benefits with the Board of Trustees or its designated representative. Such claim must be submitted in writing on a form provided by, or suitable to, the Board of Trustees at least thirty days but not more than ninety days prior to the date on which payments begin. Notwithstanding the foregoing sentence, the Administrator may permit a retroactive annuity starting date for commencement of monthly benefits payable to a participant or beneficiary. The Board of Trustees may require any applicant to furnish it with such information or identification as may be reasonably necessary, including a copy of the participant's death certificate, if applicable.

B. *Latest Time of Payment.* This section does not contain the general rules of the plan governing the time and form of distribution. In particular, this section in and of itself does not give any right to a participant or beneficiary to defer distributions beyond the time of

distribution provided in the preceding sections. The provisions of this section shall apply only to the extent they specifically override the other provisions of this plan governing the payment of pensions.

Notwithstanding anything to the contrary in the plan and regardless of any election of the participant, distribution of the participant's retirement benefit shall commence no later than the participant's required beginning date. The required beginning date of a participant is April 1 of the calendar year following the later of (i) the calendar year in which the participant attains age seventy and one-half; and (ii) the calendar year in which the participant incurs a termination of employment.

The participant's entire interest under the plan shall be distributed in the form of nonincreasing periodic annuity payments beginning on the participant's required beginning date and extending over the life of the participant or the joint lives of the participant and a designated beneficiary (as determined in accordance with Treas. Reg. § 1.401(a)(9)-4), or over a period not extending beyond the life expectancy of the participant or the joint life expectancy of the participant and a designated beneficiary.

If a participant dies after payments have begun in accordance with the immediately preceding paragraph but before the participant's entire interest has been distributed, the remaining portion of such interest shall be distributed at least as rapidly as under the method of distribution in effect as of the date of the participant's death. If a participant dies before payments have begun in accordance with the immediately preceding paragraph, the entire interest of the participant shall be distributed:

1. If payable to (or for the benefit of) a designated beneficiary in a form other than a single sum distribution, over the life of the designated beneficiary (or over a period not extending beyond the life expectancy of such beneficiary), beginning not later than one year after the date of the participant's death, or if the sole designated beneficiary is the participant's surviving spouse, by December 31 of the calendar year in which the participant would have attained age seventy and one-half, if later; and

2. If payable to (or for the benefit of) a designated beneficiary in the form of a single sum distribution, the entire interest of the participant shall be distributed within five years after the participant's death.

If the surviving spouse described in Subsection 1 above dies before the distributions to such spouse begin, this subdivision shall be applied as if the surviving spouse were the participant.

All distributions required under this section shall be determined and made in accordance with Section 401(a)(9) of the Code and Treas. Reg. §§ 1.401(a)(9)-2 through 1.401(a)(9)-9, including the incidental death benefit requirements of Section 401(a)(9)(G) of the Code and Treas. Reg. thereunder. The requirements of this section will take precedence over any inconsistent provisions of the plan. The provisions of Section 401(a)(9) of the Code, including the incidental death benefit requirements of Section 401(a)(9)(G), and the regulations thereunder, are hereby incorporated by reference.

C. *Payments to Legal Incompetents.* If the Board of Trustees shall receive satisfactory evidence that a participant or beneficiary entitled to receive any benefit under this plan is, at the time when such benefit becomes payable, physically unable or mentally incompetent to receive such benefit and to give a valid release therefor and that another person or an institution is then maintaining or has custody of such participant or beneficiary, and that no guardian or other representative of the estate of such participant or beneficiary shall have been duly appointed, then the Board of Trustees may authorize payment of such benefit otherwise payable to such participant or beneficiary to such other person or institution, and the release of such other person or institution shall be valid and complete discharge for the payment of such benefit.

D. *Misstatement in Application for Pension.* If any participant or any beneficiary in his application for a pension or in response to a request of the Board of Trustees for information gives any material fact which is erroneous or omits any material fact or fails before receiving his first payment to correct any material fact that he previously incorrectly furnished, the amount of his annuity shall be corrected and/or adjusted on the basis of the correct information and the amount of any overpayment or underpayment theretofore made to such participant shall be deducted from or added to his next succeeding payments as the Board of Trustees shall direct. (1994 C., § 4.19.100; Ord. No. 70248, §§ 29, 30, 3-22-2016; Ord. No. 69245, § 2, 7-29-2012.)

4.19.110 Special payment rules.

A. *Offset of Benefits.* Notwithstanding anything to the contrary in this chapter, any amounts paid by the

City under the provisions of the Workers' Compensation Law of the State of Missouri to a participant, or to the dependents of a participant on account of any disability or death, shall be offset against and payable in lieu of any benefits payable out of the trust fund.

B. *Benefits for Re-Hired Retirees.* If a participant is re-employed after his or her annuity starting date, pension payments shall be suspended while the participant is re-employed as an active employee. Such a participant shall continue to accrue benefits based on years of service, if any, credited after such re-employment. The participant's benefit shall be recomputed upon a subsequent termination of employment in accordance with the terms of the plan in effect at such time.

C. *Qualified Domestic Relations Orders.* In the event the former spouse of a participant is entitled to a benefit under this plan pursuant to a qualified domestic relations order, as described in Section 414(p) of the Code, such former spouse may receive such benefit in the form of a single life annuity for the lifetime of such spouse commencing on or after such participant attains his early retirement date. The monthly amount of such a single life annuity shall be determined so that such benefit is the actuarial equivalent, determined as of the benefit commencement date in accordance with Section 4.19.020.B, of the portion of the accrued benefit of the participant payable to the former spouse pursuant to the qualified domestic relations order. Notwithstanding anything to the contrary in the plan, the accrued benefit of a participant shall be reduced by an amount equal to the actuarial equivalent of any benefit paid to his former spouse pursuant to a qualified domestic relations order.

To the extent a former spouse is treated as the spouse of the participant by reason of a qualified domestic relations order, any current spouse of the participant shall not be treated as the spouse. Where, because of a qualified domestic relations order, more than one individual is to be treated as the spouse of a participant, the total amount paid from the plan shall not exceed the amount that would be paid if there were only one spouse.

No benefit shall be payable to a former spouse pursuant to a qualified domestic relations order, as described in Section 414(p) of the Code, until the former spouse shall have filed a claim for benefits with the Board of Trustees or its designated representative. Such a claim must be submitted in writing on a form provided by or suitable to the Board of Trustees at least fifteen days prior to the date on which payments begin. Payments to a former spouse in the form prescribed in this section may be made prior to the time payments are made to the participant.

D. *Direct Rollover of Eligible Rollover Distributions.* For purposes of compliance with Section 401(a)(31) of the Code, notwithstanding any provision of the Plan to the contrary that would otherwise limit a distributee's election under this section, a distributee may elect, at the time and in the manner prescribed by the Board of Trustees, to have any portion of an eligible rollover distribution, if any, paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

Definitions.

1. *Eligible rollover distribution:* An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include:

a. Any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more;

b. Any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code;

c. The portion of any distribution that is not includible in gross income; provided, however, a portion of a distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income, but such portion may be transferred only:

i. To an individual retirement account or annuity described in Section 408(a) or (b) of the Code or to a qualified defined contribution plan described in Section 401(a) of the Code that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible;

ii. To a qualified defined benefit plan described in Section 401(a) of the Code or to an annuity contract described in Section 403(b) of the Code, that agrees to

separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or

iii. To a Roth IRA described in Section 408A of the Code; and

d. Any other distribution which the Internal Revenue Service does not consider eligible for rollover treatment, such as certain corrective distributions necessary to comply with the provisions of Section 415 of the Internal Revenue Code or any distribution that is reasonably expected to total less than $200.00 during the year. The definition of eligible rollover distribution also includes a distribution to a surviving spouse.

2. *Eligible retirement plan:* An eligible retirement plan is any of the following that accepts the distributee's eligible rollover distribution:

a. An individual retirement account described in Section 408(a) of the Code,

b. An individual retirement annuity described in Section 408(b) of the Code,

c. An annuity plan described in Section 403(a) of the Code,

d. A qualified trust described in Section 401(a) of the Code,

e. An annuity contract described in Section 403(b) of the Code,

f. A plan eligible under Section 457(b) of the Code that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system, or

g. A Roth IRA described in Section 408A of the Code.

3. *Distributee:* A distributee includes an employee or former employee. In addition, the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code, are distributees with regard to the interest of the spouse or former spouse. A distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Code. However, a nonspouse beneficiary may only make a direct rollover to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity shall be treated as an "inherited" individual retirement account or annuity.

(4) *Direct rollover:* A direct rollover is a payment by the Plan to the eligible retirement plan specified by the distributee.

E. *Anti-Assignation.* Benefits provided under the plan may not be assigned or alienated except otherwise provided by law. (1994 C., § 4.19.110; Ord. No. 70248, §§ 31, 32, 3-22-2016; Ord. No. 69245, § 2, 7-29-2012.)

4.19.120 Funding.

A. *Pension Fund.* The City shall establish a trust fund into which it shall make contributions at such times and in such amounts as the actuary shall determine to keep the trust fund actuarially sound with respect to the obligation to pay the benefits under the plan. The assets in the trust fund shall be held by the Trustee for the exclusive benefit of the participants and beneficiaries and at no time prior to the satisfaction of all of the liabilities under the plan to pay benefits to participants and beneficiaries shall any part of the trust fund be used for or diverted to any purpose other than for their exclusive benefit or to pay administrative expenses of the plan, except as specifically provided in this plan. The Trust Fund must not revert, and no contributions shall be permitted to be returned, to the City, except due to a mistake of fact as permitted by Revenue Ruling 91-4.

B. *Annual actuarial examination.* At least once each year, the Board of Trustees shall cause the liabilities of the plan with respect to retirement benefits to be evaluated by an actuary who shall report on the soundness and solvency of the trust fund in relation to such liabilities and on the amount of the contribution for the year which is appropriate to keep the trust fund actuarially sound with respect to the obligation to pay the benefits under the plan. Except as described below, each such report shall be delivered to the City's Budget Director no later than March 1 of each year.

The actuary shall use the entry age normal method, amortizing the unfunded accrued liability as a level percent of payroll over a closed thirty-year period. If the Board of Trustees fails to provide the actuarial valuation on or before the deadline for a plan year, the amount of the contribution for such year shall be determined by an actuary retained by the City.

The Board of Trustees shall retain actuaries in accordance with the policies established by the Board of

Trustees as may be revised or amended by the Board of Trustees from time to time. The actuaries retained by the Board of Trustees may be the same actuaries retained by the Board of Trustees of the Firemen's Retirement System.

At least every five years, the Board of Trustees shall engage the actuary to review the mortality, service and compensation experience of the participants and beneficiaries of the plan and update mortality and other assumptions as appropriate.

C. *Rights of participants.* No person shall have any financial interest in, or right to, any benefits or assets in the trust fund, except as expressly provided for in this plan. The payment of all benefits accrued under this plan is hereby made an obligation of the City.

D. *Return of employer contributions.* In the event a contribution by the City is made by reason of a mistake of fact, the excess of the amount contributed over the amount that would have been contributed had there not occurred a mistake of fact (without earnings attributable to such excess, but after reduction of losses attributable thereto) must be returned to the City within one year of such a mistaken payment.

(1994 C., § 4.19.120; Ord. No. 71818, § 5, 3-7-2024; Ord. No. 70248, §§ 33—35, 3-22-2016; Ord. No. 69353, §§ 23, 24, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.130 Trust fund investments.

A. *Trust Fund.* The funds accumulated under the plan shall be held in trust for the exclusive benefit of the participants of the plan and their beneficiaries by the Board of Trustees in accordance with this section.

B. *Investment of Trust Assets.* The Board of Trustees shall have the authority and discretion to invest the assets of the plan in accordance with this section, except to the extent that the authority to manage, acquire or dispose of assets of the plan is delegated to one or more investment managers. The Board of Trustees may, but shall not be required to, appoint an investment manager or managers to manage all or any portion of the assets of the trust fund. An investment manager shall have the authority and discretion to manage and control the assets of the plan assigned to it by the Board of Trustees, in accordance with the agreement between the investment manager and the Board of Trustees. The Board of Trustees shall not be obligated to invest or otherwise manage any assets of the plan so assigned to an investment manager, nor shall the Board of Trustees be liable for the acts or omissions of such an investment manager.

The selection of investment managers shall be based solely on sound investment principles in the best interest of the Trust Fund for the best interests of the Plan participants and beneficiaries. No member of the Board of Trustees shall have any personal interest in the selection of an investment manager, except benefits from an interest in investments common to all participants in the Plan. The Board of Trustees shall keep a record of the process for the selection of investment managers, which shall be open to public inspection except as provided by law.

Upon transfer of the assets of the prior plan to the trust fund, each investment manager of assets of the prior plan shall continue to manage the assets assigned to it at the time of the transfer, until the Board of Trustees removes such investment manager or reduces the amount of assets assigned to it.

C. *Standard of Care.* The Board of Trustees shall invest and manage the assets of the trust fund as a prudent investor would, taking into account the purposes, terms, distribution requirements, and other circumstances of the plan. In satisfying this standard, the Board of Trustees shall exercise reasonable care, skill and prudence. No member of the Board of Trustees shall have any interest in the gains or profits made on any investment, except benefits from an interest in investments common to all participants in the plan.

D. The general administration and the responsibility for the proper operation of the plan shall be vested in a Board of Trustees comprised of eight (8) persons. The Board shall be constituted as follows:

1. Chief of the St. Louis Fire Department, as an ex officio member;

2. Comptroller or Deputy Comptroller if designated by the Comptroller to serve in the Comptroller's stead, as an ex officio member;

3. Two (2) members appointed by the Mayor each of who shall serve for a term of two (2) years;

4. Three (3) members who shall be participants of the plan to be elected by the participants of the plan each of who shall serve for a term of three (3) years but only so long as they remain a participant of the plan;

5. One (1) Board member who shall be a retired City of St. Louis firefighter to be elected by the retired firefighters who shall hold a term of office of three (3) years.

Upon a vacancy on the Board of Trustees the vacant seat shall be filled in the same manner provided in this chapter for the unexpired term of the preceding member.

Members of the Board of Trustees shall serve without compensation, but shall be reimbursed for all necessary expenses which they may incur in fulfilling their duties and responsibilities as members of the Board of Trustees.

Each Trustee shall within ten (10) days after their appointment or election to the Board of Trustees shall take an oath of office administered by the Clerk of the Circuit Court of the City of St. Louis, that so far as it devolves upon them they will diligently and honestly carryout their responsibilities and duties as members of the Board of Trustees and administer the affairs of the Board of Trustees, and that they will not knowingly violate or knowingly permit to be violated any of the applicable provisions of the laws and regulations which govern the plan. Said oath shall be subscribed to by the Trustee, certified by the Clerk of the Circuit Court and maintained in the files of the Clerk of the Circuit Court.

Each member of the Board of Trustees shall have one (1) vote on the Board, and at least five (5) votes shall be required in order to pass a motion for any decision of the Board of Trustees.

The above notwithstanding, the individuals constituting the Board of Trustees of the Firemen's Retirement System of St. Louis shall also constitute the Board of Trustees of the plan unless and until the Firemen's Retirement System Board of Trustees determines by a majority vote that the individuals constituting the Firemen's Retirement System Board of Trustees shall no longer constitute the Board of Trustees of this plan. Upon such a determination by the Board of Trustees of the Firemen's Retirement System said Board shall provide six (6) months' written notice to this plan and to the Mayor of the City of St. Louis so that new members of the Board of Trustees of the plan may be appointed or elected, and take the office no later than six (6) months after receipt of said written notice.

E. *Powers of the Board of Trustees.* Without limiting the powers of the Trustees, the Trustees are authorized and empowered:

1. To invest the trust fund in such bonds, notes, debentures, mortgages, insurance contracts, trust certificates, preferred or common stocks or in any other property, real or personal, as the trustees may deem advisable; and to hold in cash such portion of the trust fund as shall be reasonable under the circumstances, pending investment or payment of expenses or distribution of benefits;

2. To sell, exchange, convey, transfer or dispose of and also to grant options with respect to any property, whether real or personal, at any time held by it; any sale may be made by private contract or by public auction; and no person dealing with the trustees shall be bound to see to the application of the purchase money or to inquire into the validity, expediency or propriety of any such sale or other disposition;

3. To retain, manage, operate, repair and improve and to mortgage or lease for any period any real estate held by the Board of Trustees;

4. To compromise, compound and settle any debt or obligation due to or from it as trustee hereunder and to reduce the rate of interest on, to extend or otherwise modify, to foreclose upon default, or to otherwise enforce any such obligation;

5. To vote in person or by proxy on any stocks, bonds or other securities held by it; to exercise any options appurtenant to any stocks, bonds or other securities for the conversion thereof into other stocks, bonds or other securities or to exercise any rights to subscribe for additional stocks, bonds or other securities and to make any and all necessary payments; to join in, or to dissent from, and to oppose the reorganization, recapitalization, consolidation, sale or merger of corporations or properties in which it may be interested as trustees, upon such terms and conditions as they may deem wise, and to accept any securities which may be issued upon any such reorganization, recapitalization, consolidation, sale or merger;

6. To make, execute, acknowledge and deliver any and all deeds, leases, assignments and any and all other instruments that may be necessary or appropriate to carry out the powers herein granted;

7. Subject to the limitations set forth in this chapter, to enforce any right, obligation or claim and, in general, to protect in any way the interests of the trust fund, either before or after default, and, where it shall consider such action in the best interest of the trust fund to abstain from the enforcement of any right, obligation or claim and to abandon any property, whether real or personal, which at any time may be held by it;

8. To cause any investment from time to time held by it to be registered in, or transferred to, their name as

trustees or in the name of their nominee, or to retain in book entry or unregistered form or in a form permitting transferability by delivery; provided, that the books and records of the Board of Trustees shall at all times show that all such investments are part of the trust fund;

9. To do all acts which it may deem necessary or proper, and to exercise any and all of the powers of the trustees under this plan upon such terms and conditions as it may deem to be in the best interest of the trust fund, as established in this chapter;

10. To invest and reinvest all or any part of the trust fund through the medium of any common, collective or commingled trust fund maintained by state and federally chartered financial institutions (which institution may be the trustee or affiliated with the trustee) as the same may have heretofore been or may hereafter be established or amended, which is qualified under the provisions of Section 401(a) of the Code and exempt under Section 501(a) of the Code, and during such period of time as an investment through any such medium shall exist, the declaration of trust of such fund shall constitute a part of the plan;

11. To invest assets of the trust fund in deposits of a bank or similar financial institution that bear a reasonable rate of interest;

12. To establish an investment policy, which sets out investment objectives, goals and guidelines for the investment of the assets over which the Board of Trustees or an Investment Manager has discretionary control; and

13. To enforce collection of receivables, including an obligation of the City to make a contribution to the plan.

F. *Removal of Trustee.* The Mayor of the City of St. Louis may remove a member of the Board of Trustees appointed by the Mayor.

G. *Audit.* At the direction of the Director of Personnel, the Board of Trustees shall obtain an audit by an unrelated accounting or pension consulting firm to verify that the directions of the Trustees, and the payments from the plan, are made in accordance with the terms of the plan. The unrelated accounting firm retained by the Board of Trustees to conduct the audit may be the accounting firm retained by the Firemen's Retirement System Board of Trustees to conduct its audit.

H. *Bond.* Each member of the Board of Trustees shall be bonded for at least $500,000.00, or any other amount set by the Director of Personnel. The bond shall provide protection to the plan against loss to the plan by reason of acts of fraud or dishonesty, or intentional disregard of the terms of the plan.

(1994 C., § 4.19.130; Ord. No. 71818, §§ 6, 7, 3-7-2024; Ord. No. 70248, §§ 36—38, 3-22-2016; Ord. No. 69353, § 25, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.140 Administration—Powers and duties of Trustees.

A. *Plan Administrator.* The authority and responsibility for the interpretation, operation and general administration of the plan shall be vested in the Board of Trustees.

B. *Duties of Plan Administrator.* The Board of Trustees shall have the discretionary authority and responsibility to interpret and manage the plan and exercise all fiduciary responsibilities with respect to the plan. The duties and powers of the Board of Trustees as Plan Administrator shall include, but not be limited to, the following:

1. To interpret the plan provisions and to decide all questions concerning the plan and the eligibility of any employee to participate in the plan and to receive benefits from the plan;

2. To authorize the payment of benefits at such times and in such manner as they determine are consistent with the terms of the plan;

3. To keep accurate and detailed records of the administration of the plan, including the amount of accumulated contributions credited to the account of each participant, which records shall be open to inspection by the City at all reasonable times;

4. To establish and enforce such rules, regulations and procedures as it shall deem necessary or proper for the efficient administration of the plan;

5. To delegate to any agents such duties and powers, both ministerial and discretionary, as it deems appropriate, by an instrument in writing which specifies which such duties are so delegated and to whom each such duty is so delegated; and

6. To keep a record of all its proceedings, which shall be open to public inspection, and to publish annually a report showing the fiscal transactions of the plan for the preceding plan year and the financial statement showing the assets of the plan.

7. Correction of Errors. The Board of Trustees may correct and/or adjust the benefits of any person who shall make any false statement, or shall falsify or

permit to be falsified any record or records. Should any change or error in records result in any participant or beneficiary receiving from the retirement system more or less than he or she should have been entitled to receive had the records been correct, the Board of Trustees shall correct the error, and as far as practicable, shall adjust the payments in such a manner that the actuarial equivalent of the benefit to which the participant or beneficiary was correctly entitled, shall be paid.

Notwithstanding any other provision of this chapter, the Board of Trustees shall have no duty or authority with respect to the establishment, design, amendment or termination of the plan, which is reserved to the City. Such functions are settlor functions, which are reserved to the City, not fiduciary functions, in accordance with trust law.

C. *Written Instructions and Information.* All claims, elections, instructions and requests by a participant must be made in writing to the Board of Trustees. Each participant shall furnish the Board of Trustees any requested information as needed to administer the plan. The City shall furnish the Board of Trustees with the information needed to administer the plan.

D. *Compensation of actuaries and money managers.* All actuaries and investment managers may receive reasonable compensation from the trust fund for services rendered to plan or trust, provided that no person providing such services to the plan who already receives full-time pay from the City for performing such services shall receive compensation from the trust fund except for reimbursement of expenses properly and actually incurred. The investment managers may be the same investment managers retained by the Firemen's Retirement System.

E. *Allocation and delegation procedures.* The Board of Trustees may appoint one or more of its members to carry out any particular duty or duties or to execute any and all documents on its behalf. Any documents so executed shall have the same effect as though executed by all the members. Such appointments shall be made by an instrument in writing that specifies what duties and powers are so allocated and to whom each such duty or power is so allocated. The Board of Trustees may delegate to any agents (including the Trustee) such duties and powers, both ministerial and discretionary, as it deems appropriate, by an instrument in writing which specifies which such duties are so delegated and to whom each such duty is so delegated. In addition to the written appointments permitted above, the Board of Trustees shall appoint a five-person Disability Board from the members of the Board of Trustees, which Disability Board shall consist of the Comptroller or Deputy Comptroller of the City, ex officio, the two (2) Board of Trustee members appointed by the Mayor of the City and two (2) additional Board of Trustee members designated from time to time by the Chairman of the Board of Trustees.

F. *Indemnification of board of trustees.* The plan shall indemnify any person serving on the Board of Trustees against all liabilities and claims (including reasonable attorneys' fees and expenses in defending against such liabilities and claims) other than liability arising out of a breach of fiduciary responsibility caused by the action of such person, liability for acting outside the scope of the person's authority, including, but not limited to, the authority and limitations stated in this Section 4.19.140, and liability for directing payment of benefits that are not made pursuant to a reasonable, good faith interpretation of the explicit terms of the plan.

G. *Officers and employees.* The plan's Board of Trustees shall elect a chairman from its members by a majority vote and may designate an individual to take notes at the meeting and to draft minutes of the meeting to submit to the Board of Trustees for approval. The individual designated to take notes may, but shall not be required to be a member of the Board of Trustees. The Board of Trustees shall appoint all employees of the plan and shall direct the work of said plan employees in accordance with the rules, policies and procedures established by the Board of Trustees. Relatives of members of the Board of Trustees shall not be employed to perform any services for its plan or Board of Trustees or receive any compensation from the Trust Fund. The Board of Trustees may retain employees of the plan appointed by the City Director of Personnel until such time as the Board of Trustees determines that the employees of the Firemen's Retirement System are prepared to perform the work for the plan. During such time as the employees appointed by the Director of Personnel are working for the plan the Board of Trustees and not the Director of Personnel shall direct the work of such employees. As long as individuals constituting the Board of Trustees of the Firemen's Retirement System also constitute the Board of Trustees of the plan, then once the employees of the Firemen's Retirement System are performing work for the

plan, the plan will not pay said employees directly from the plan trust fund but shall instead reimburse the Firemen's Retirement System for its share of the cost of the work performed by said employees of the Firemen's Retirement System for the plan. Employees of the Firemen's Retirement System shall not perform work for the plan if the individuals constituting the Board of Trustees of this plan and the Board of Trustees of the Firemen's Retirement System are not the same individuals.

(1994 C., § 4.19.140; Ord. No. 71818, §§ 8, 9, 13, 3-7-2024; Ord. No. 70248, §§ 39—41, 3-22-2016; Ord. No. 69353, §§ 26, 27, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.150 Claims and review procedure.

A. *Claims for Benefits.* A participant or beneficiary who believes that he is being denied or will be denied benefits to which he is entitled under the plan may file a written request for such benefits with the Board of Trustees setting forth his claim.

B. *Written Denials of Claims.* Within ninety days after receipt of the request, the Board of Trustees shall provide to every claimant who is denied a claim for benefits, written notice setting forth in a manner calculated to be understood by the claimant:

1. The specific reason or reasons for the denial;

2. Specific reference to pertinent plan provisions on which the denial is based;

3. A description of any additional material or information necessary for the claimant to perfect the claim and an explanation of why such material or information is necessary; and

4. An explanation of the claim review procedure and the time limits applicable to such procedures.

If special circumstances require an extension of time beyond the initial ninety-day period, prior to the end of such initial ninety-day period the Board of Trustees shall provide to the claimant written notice of the extension, the special circumstances requiring the extension, and the date by which the Board of Trustees expects to render the final decision.

C. Appeal of Denial. Within sixty days after a claim is denied, the claimant or his duly authorized representative may appeal such denial to the Board of Trustees by filing a written notice of appeal of the claim denial with the Board of Trustees, provided that if the claimant or his duly authorized representative fails to file such appeal within sixty days after the claim is denied, the claimant shall be deemed to have waived any right to appeal the denial of the claim. The notice of appeal shall reasonably apprise the Board of Trustees of the reasons and grounds for such appeal and shall specify the scope of review desired by requesting any or all of the procedures as follows:

1. Review, upon request and free of charge, all documents, records and other information in the possession of the Board of Trustees that are relevant to the claim; and

2. Submit written comments, documents, records and other information relating to the claim.

If review of a decision is requested, such review shall include a review of all comments, documents, records and other information submitted by the claimant relating to the claim without regard to whether such information was submitted or considered in the initial determination. Any denial shall inform the claimant of the specific reason or reasons for the denial, refer to the specific Plan provisions on which the denial is based, state that the claimant is entitled to receive, upon request and free of charge, reasonable access to, and copies of all documents, records and other information relevant to the claim. The decision on review shall be final and legally binding on all parties. (1994 C., § 4.19.150; Ord. No. 69245, § 2, 7-29-2012.)

4.19.160 Amendment.

The City reserves the right at any time, and from time to time, to modify or amend the Plan in whole or in part by duly adopting an ordinance, provided that the obligation of the City to make contributions to the Plan, as provided in Section 4.19.120.A, and the provisions relating to the enforcement of that obligation, may not be diminished.

No employee shall have a contractual right to any benefits relating to, or based upon, service rendered or compensation paid after the effective date of an amendment that reduces future benefits.

In the event of a full or partial termination of, or a complete discontinuance of employer contributions to, the Plan, the accrued benefits of the affected participants under the Plan shall be one hundred percent vested and nonforfeitable to the extent funded and to the extent required by federal law. (1994 C., § 4.19.160; Ord. No. 70248, § 42, 3-22-2016; Ord. No. 69353, § 28, 12-28-2012; Ord. No. 69245, § 2, 7-29-2012.)

4.19.170 Miscellaneous.

A. *Rights of employee.* Neither the action of the City in establishing this plan, nor any action taken by an employer or the Trustee, nor any provision of the plan shall be construed as giving to any employee the right to be retained in the employ of the City or the right to any payments other than those expressly in the plan to be paid from the trust fund. The City expressly reserves the right to modify the plan terms and benefits at any time. The City also expressly reserves the right to dismiss any Employee without any liability for any claim against such employer or against the trust fund other than with respect to the benefits provided for by the plan. Nothing in the plan shall allow for an amendment to Chapter 4.18, Firemen's Retirement System, to be effective without a prior amendment to RSMo Ch. 87 containing the same language.

B. *Prohibited transactions.* The Board of Trustees may not engage in a transaction prohibited by Section 503(b) of the Code.

C. *Notice of address.* Each person entitled to benefits under this plan must file with the Board of Trustees, in writing, his Social Security number, his post office address and each change of post office address. Any communication, statement, or notice addressed to such person at his latest post office address as filed with the Board of Trustees will be binding upon such person for all purposes of the plan, and neither the Trustee nor the Board of Trustees shall be obliged to search for or to ascertain the whereabouts of any such person.

D. *Rules of construction.* The terms and provisions of this plan shall be construed in accordance with the meaning under, and which will bring the plan into conformity with Section 401(a) of the Code, and in accordance with the laws of the State of Missouri. The plan shall be deemed to contain the provisions necessary to comply with such laws. If any provision of this plan shall be held illegal or invalid, the remaining provisions of this plan shall be construed as if such provision had never been included and such remaining provisions shall remain valid and operative; provided that the benefits accrued under the prior plan on account of earnings and service before the effective date shall be assumed by and paid under this plan if and only if the assets of the prior plan are merged into the trust fund under this plan in accordance with Section 4.19.010.E. Wherever applicable, the masculine pronoun as used herein shall include the feminine, and the singular shall be the plural.

E. *Legal action.* No action may be brought in law or equity to recover under this plan until the claims and review procedures of Section 4.19.150 have been exhausted with respect to a claim; and no action may be brought after one year of the final denial of an appeal pursuant to Section 4.19.150.C.

In the event of a failure or refusal by the Trustees to administer the plan according to the terms of the ordinances governing FRP, or if the Trustees act in manner contrary to their scope of authority, including, but not limited to, the authority and limitations stated in Section 4.19.140, the City may seek and pursue any or all legal remedies to enforce adherence to the terms and conditions stated in the ordinances governing FRP, including, but not limited to, a suit for injunction, writ of mandamus or prohibition or court appointment of a successor Trustee.

(1994 C., § 4.19.170; Ord. No. 71818, § 10, 3-7-2024; Ord. No. 70248, §§ 43, 44, 3-22-2016; Ord. No. 69245, § 2, 7-29-2012.)

Chapter 4.20

SOCIAL SECURITY

Editor's Note:

Senate Committee Substitute for Senate Bill No. 3 of the Sixty-Sixth General Assembly, referenced in this chapter, is RSMo 105.300 et seq.

Sections:

4.20.010	**Policy and purpose.**
4.20.020	**Plan and agreement.**
4.20.030	**Deductions.**
4.20.040	**City contributions.**
4.20.050	**Records, reports and administration.**

4.20.010 Policy and purpose.

It is declared to be the policy and purpose of the City to extend, at the earliest date, to all eligible employees and officials of the City who are not excluded by law, and whether employed in connection with a governmental or proprietary function of the City, the benefits of the system of Federal Old-Age and Survivors Insurance, as authorized by the Social Security Act Amendments of 1950, and by Senate Committee Substitute for Senate Bill No. 3 of the Sixty-Sixth General Assembly of the state and amendments thereto,

as the same may be now and hereafter in effect. (1960 C., § 45.010; 1994 C., § 4.20.010; Ord. No. 45853, § 1, 1951.)

McQuillin:

24.47 Power to provide social security.

4.20.020 Plan and agreement.

The Mayor and Comptroller are authorized and directed, on behalf of the City, to prepare, execute and submit to the Division of Budget and Comptroller of the State, as state agency, a plan and agreement for extending Social Security benefits to eligible employees and officials of the City, in the form prepared by the state agency and approved and adopted by the Board of Aldermen. The plan and agreement are to become effective upon approval thereof by the state agency. The Mayor and Comptroller are further authorized and directed to execute agreements and modifications and amendments thereof with the state agency, providing for the extension of Social Security benefits to employees and officials as set forth in the plan and agreement, as provided for in Section 4.20.010. The plan and agreement shall provide that the extension of benefits is to be effective on January 1, 1951. (1960, § 45.020; 1994 C., § 4.20.020; Ord. No. 45853, § 2, 1951.)

RSMo:

RSMo 105.350 Agreements between the state and its political subdivisions.

4.20.030 Deductions.

Commencing on the first day of the month following the date of the approval of the plan and agreement of the City by the state agency, there shall be deducted from the wages of all employees of officials of the City, to whom the benefits of the system of Federal Old-Age and Survivors Insurance are extended, by virtue of the plan and agreement provided for in Section 4.20.020, the amount of each of the employees' and officials' contributions, as determined by the applicable state and federal laws and by the plan and agreement. The aggregate amount of the deductions is to be paid into the contributions fund created by Senate Committee Substitute for Senate Bill No. 3 of the Sixty-Sixth General Assembly of the state. From the wages paid to each of the employees and officials during the months of October, November and December of 1951, and after the benefits of the system have been extended to such employees and officials, there shall be deducted a sum equal to the amount which would have been due and payable from the employees and officials had the extension of benefits been provided and effective on January 1, 1951. (1960 C., § 45.030; 1994 C., § 4.20.030; Ord. No. 45853, § 3, 1951.)

RSMo:

RSMo 105.370 Contributions by political subdivisions and employees—liability for.

4.20.040 City contributions.

Commencing on the first day of the month following the date of the approval of the plan and agreement of the City by the state agency, there is to be and shall be appropriated from municipal revenue funds of the City, the sum or sums of money necessary to pay the contributions of the City, which shall be due and payable by virtue of the extension of the benefits of the Federal Old-Age and Survivors Insurance System to the eligible employees and officials of the City. The sum or sums of money is to be paid into the contributions fund created by Senate committee Substitute for Senate Bill No. 3 of the Sixty-Sixth General Assembly of the state. In making the first payment to the contributions fund after the benefits of the system have been extended to the employees and officials, the first payment shall include a sum equal to the amount which would have been due and payable had the extension of benefits been provided and effective on January 1, 1951. The fund from which the appropriation is made will, at all times, be sufficient to pay the contributions of the City by this section directed to be paid to the contributions fund. (1960 C., § 45.040; 1994 C., § 4.20.040; Ord. No. 45853, § 4, 1951.)

4.20.050 Records, reports and administration.

The City, from and after the approval of the plan and agreement of the City by the state agency, shall fully comply with, and shall keep records, make reports and provide methods of administration of the plan and agreement as may be required by all applicable state and federal laws, rules and regulations, now and hereafter in effect with respect to the extension of the benefits of the Federal Old-Age and Survivors Insurance System to the employees and officials of the City. For the purpose of administering the plan and agreement, the City Comptroller shall be the official who shall make all required reports, keep all records, and be responsible for the administration of the plan and agreement on behalf of the City. Any and all notices and communications from the state agency to the City with respect to the plan and agreement shall be addressed to "City of St. Louis, Department of Finance, Comptrol-

ler's Office, Room 214 City Hall, St. Louis 3, Missouri." (1960 C., § 45.050; 1994 C., § 4.20.050; Ord. No. 45853, § 5, 1951.)

Chapter 4.22

BOARD OF ALDERMEN EMPLOYEES

Sections:

4.22.010 Salaries.

4.22.010 Salaries.

The salaries of the employees of the Board of Aldermen shall be equivalent to the matching salary range as defined in the Civil Service Pay Ordinance. Salaries shall be paid bi-weekly and the employees shall be placed on the step authorized by the Personnel Committee of the Board of Aldermen which range and step authorizations shall continue in force until changed, if so, by said Committee. Salary grades shall be follows:

Counsel of the Board of Aldermen: 68M

Clerk, Board of Aldermen: 50M

Asst. Clerk, Board of Aldermen: 44M

Administrative Asst: 44M

Executive Secretary of Board of Aldermen: 44M

Secretary: 34G

Receptionist/Secretary: 26G

Custodian: 24G

Sergeant-at-Arms: 24G (1948 C., Ch. 2, §§ 19, 20; 1960 C., §§ 11.070(part), 11.080(part), 46.010; 1994 C., § 4.22.010; Ord. No. 60237, § 3, 1987; Ord. No. 59577, § 7, 1985; Ord. No. 59513, § 7, 1985; Ord. No. 5832O § 3(part), 1981; Ord. No. 58053, § 2, 1980; Ord. No. 57848, § 2, 1979; Ord. No. 57687, § 1, 1978; Ord. No. 57330, § 1, 1977; Ord. No. 57187, § 1, 1976; Ord. No. 56814, § 1, 1974; Ord. No. 56517, § 1, 1973; Ord. No. 55651, § 3, 1970; Ord. No. 54495, § 1, 1967; Ord. No. 53377, § 1(part), 1965.)

City Counselor Ops: 8178, 8857, 10291

Chapter 4.24

MAGISTRATE COURT EMPLOYEES

Editor's Note:

Text omitted as obsolete in light of abolition of magistrate courts by the 1978 amendment to the judicial article of the Missouri Constitution, art. V.

Cases:

For cases concerning authority of board of aldermen to appoint clerks for city magistrate court with salary to be paid by city, see *State ex rel. Hart et al. v. City of St. Louis et al.,* 204 S.W. 2d 234.

Chapter 4.26

TREASURY DIVISION EMPLOYEES

Sections:

4.26.010 Treasurer salary.
4.26.015 Position classes.
4.26.020 Pay schedule.
4.26.021 Starting salary.
4.26.022 Promotion, demotion, transfer, reallocation.
4.26.023 Salary adjustment.
4.26.030 Bi-weekly pay schedule.
4.26.040 Income sources.
4.26.050 Conversion.
4.26.060 Changes to pay plan.
4.26.070 Reserved.
4.26.080 Reserved.

4.26.010 Treasurer salary.

The City Treasurer shall receive a salary of eight thousand dollars per year.

(1948 C., Ch. 23, § 98(part); 1960 C., § 49.010; 1994 C., § 4.26.010; Ord. No. 51385, § 1(part), 1962; Ord. No. 50851, § 1(part), 1962; Ord. No. 50271, § 1(part), 1961; Ord. No. 49950, § 1(part), 1960; Ord. No. 48212, § 1(part), 1957; Ord. No. 45555, § 1(part), 1951; Ord. No. 44821, § 1(part), 1949.)

4.26.015 Position classes.

The following positions of the Treasurer's Office whose duties shall be those indicated by their respective titles, are hereby allocated as listed below and adopted as the classification of the Treasurer's Office:

Class Title	Grade
Assistant Treasurer	19M
Accounting Manager	16M
Director of Office of Financial Empowerment	15M
College Kids Program Manager	15G
Financial Empowerment Specialist	14G
Accountant II	14G
Financial Wellbeing Coach	13G
Accountant I	13G
Treasury Clerk II	12G
Treasury Clerk I	11G
Cashier	12G
Administrative Assistant	11G

(1994 C., § 4.26.015; Ord. No. 71965, § 2, 2-11-2025; Ord. No. 71690, § 2, 7-10-2023; Ord. No. 71550, § 2,

7-18-2022; Ord. No. 69195, § 2, 7-13-2012; Ord. No. 68709, § 2, 7-9-2010; Ord. No. 68121, § 2, 10-10-2008; Ord. No. 67805, § 2, 2007; Ord. No. 67330, § 2, 2006; Ord. No. 66279, § 2, 2004; Ord. No. 65519, § 2, 2002; Ord. No. 64950, § 2, 2000; Ord. No. 64378, § 2, 1998; Ord. No. 63816, § 2, 1996; Ord. No. 63182, § 2, 1994.)

4.26.020 Pay schedule

The following bi-weekly pay schedule for all grades denoted with the suffix "G" or "M" shall become effective beginning with the bi-weekly pay period starting the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
7	840	1264
8	912	1374
9	989	1492
10	1074	1625
11	1169	1768
12	1270	1923
13	1400	2124
14	1605	2436
15	1839	2796
16	2110	3207
17	2421	3684
18	2777	4230
19	3189	4858
20	3662	5580
21	3951	6024
22	4263	6503
23	4601	7021

(1948 C., Ch. 23, § 98; 1960 C., § 49.020; 1994 C., § 4.26.020; Ord. No. 71965, § 3, 2-11-2025; Ord. No. 71690, § 3, 7-10-2023; Ord. No. 71550, § 3, 7-18-2022; Ord. No. 69195, § 3, 7-13-2012; Ord. No. 68709, § 3, 7-9-2010; Ord. No. 68121, § 3, 10-10-2008; Ord. No. 67805, § 3, 2007; Ord. No. 67330, § 3, 2006; Ord. No. 66279, § 3, 2004; Ord. No. 65519, § 3, 2002; Ord. No. 64950, § 3, 2000; Ord. No. 64378, § 3, 1998; Ord. No. 63816, § 3, 1996; Ord. No. 63182, § 3, 1994; Ord. No. 62662, §§ 2—4, 1992; Ord. No. 62332, §§ 2—4, 1991; Ord. No. 62102, §§ 2—4, 1990; Ord. No. 62006, §§ 2—4, 1990; Ord. No. 61285, §§ 2—4, 1991; Ord. No. 59939, §§ 2—6, 1986; Ord. No. 59154, §§ 2, 3, 4, 1984; Ord. No. 58689, §§ 2, 3, 4, 1982; Ord. No. 57806, § 1, 1979; Ord. No. 57669, § 1, 1978; Ord. No. 57345, § 1, 1977; Ord. No. 57184, § 1, 1976; Ord. No. 56804, § 1, 1974; Ord. No. 58016, § 1, 1980; Ord. No. 56494, § 1, 1973; Ord. No. 56046, § 1, 1971; Ord. No. 55738, § 1, 1971; Ord. No. 55676, § 1, 1970; Ord. No. 55362, § 1, 1969; Ord. No. 55437, § 1, 1966; Ord. No. 53374, § 1, 1965; Ord. No. 52741, § 2, 1964; Ord. No. 51385, § 1, 1962; Ord. No. 50851, § 1, 1962; Ord. No. 50271, § 1, 1961; Ord. No. 49950, § 1, 1960; Ord. No. 48212, § 1, 1957; Ord. No. 47524, § 1, 1955; Ord. No. 45555, § 1, 1951; Ord. No. 44821, § 1, 1949.)

City Counselor Ops.: 9811

4.26.021 Starting salary.

The minimum rate of pay for a position shall be paid upon original appointment to the class, unless the Treasurer (hereinafter referred to as the "Appointing Authority") finds that it is impractical to recruit employees with adequate qualifications at the minimum rate.

If an advanced starting salary is necessary, the Appointing Authority may establish a recruitment rate for a single position or all positions in a class and authorize employment at a figure above the minimum but within the regular range of salary established for the class.

(1994 C., § 4.26.021; Ord. No. 71965, § 4, 2-11-2025; Ord. No. 71690, § 4, 7-10-2023; Ord. No. 71550, § 4, 7-18-2022; Ord. No. 69195, § 4, 7-13-2012; Ord. No. 68709, § 4, 7-9-2010; Ord. No. 68121, § 4, 10-10-2008; Ord. No. 67805, § 4, 2007; Ord. No. 67330, § 4, 2006; Ord. No. 66279, § 4, 2004; Ord. No. 64950, § 4, 2000; Ord. No. 64378, § 4, 1998; Ord. No. 63816, § 4, 1996; Ord. No. 63182, § 4, 1994; Ord. No. 62662, § 5, 1992; Ord. No. 62332, § 5, 1991; Ord. No. 62102, § 5, 1990; Ord. No. 62006, § 5, 1990; Ord. No. 61285, § 5, 1989; Ord. No. 59939, § 7, 1986; Ord. No. 59154, § 5, 1984; Ord. No. 58689, § 5, 1982.)

4.26.022 Promotion, demotion, transfer, reallocation.

An employee who is promoted, demoted, transferred, or whose position is reallocated or reassigned after the effective date of this chapter, shall have his or her rate of pay for the new position determined as follows:

(a) *Promotion:* This shall be defined as a change of an employee from a position of one class to a position of another class with a higher pay grade.

(1) When an employee is promoted to a position in the General and Management Schedule, the employee's salary shall be set at a rate deemed appropriate by the Appointing Authority. Such salary determination shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting

from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position.

(b) *Demotion:* This shall be defined as a change of an employee from a position of one class to a position of another class which has a lower pay grade.

(1) If an employee is demoted for disciplinary reasons his or her rate of pay shall be established at a rate within the range for the new position to be determined by the Appointing Authority.

(c) *Transfer:* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, shall remain unchanged, provided that no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(d) *Reallocation:*

(1) The salary of an employee which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his or her position has been allocated or may be reallocated shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he or she remains in the class of position, except as otherwise provided by this chapter.

(2) If the employee's position is reallocated to a class in a lower pay grade and the rate of pay for the previous position is within the salary range of the new position, his or her salary shall remain unchanged.

(3) The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of this Section 4.26.022(a)(1) relating to salary advancement on promotion.

(1994 C., § 4.26.022; Ord. No. 71965, § 5, 2-11-2025; Ord. No. 71690, § 5, 7-10-2023; Ord. No. 71550, § 5, 7-18-2022; Ord. No. 69195, § 5, 7-13-2012; Ord. No. 68709, § 5, 7-9-2010; Ord. No. 68121, § 5, 10-10-2008; Ord. No. 67805, § 5, 2007; Ord. No. 67330, § 5, 2006; Ord. No. 66279, § 5, 2004; Ord. No. 64950, § 5, 2000; Ord. No. 64378, § 5, 1998; Ord. No. 63816, § 5, 1996; Ord. No. 63182, § 5, 1994; Ord. No. 62662, § 6, 1992; Ord. No. 62332, § 6, 1991; Ord. No. 62102, § 6, 1990; Ord. No. 62006, § 6, 1990; Ord. No. 61285, § 6, 1989; Ord. No. 59939, § 8, 1986; Ord. No. 59154, § 6, 1984; Ord. No. 58689, § 6, 1982.)

4.26.023 Salary adjustment.

Salary adjustments for all employees shall be based on considerations of merit, equity, or success in fulfilling predetermined performance factors as established by the Appointing Authority.

(a) Based upon the service rating of an employee together with the standard of performances established by the Appointing Authority, the Appointing Authority shall determine eligibility for up to a two (2) percent increase or at the discretion of the Appointing Authority up to a ten (10) percent increase for exceptional performance of duties.

(b) All full-time employees will receive a three (3) percent across the board increase in pay.

(c) All full-time employees who meet the eligibility requirements pursuant to FMLA will be entitled to six (6) weeks of paid leave.

(d) The compensation of the Appointing Authority may be annually increased by an amount equal to the annual salary adjustment for employees of the City of St. Louis as approved by the Board of Alderman as provided in RSMo 82.520.

(1994 C., § 4.26.023; Ord. No. 71965, § 6, 2-11-2025; Ord. No. 71690, § 6, 7-10-2023; Ord. No. 71550, § 6, 7-18-2022; Ord. No. 69195, § 6, 7-13-2012; Ord. No. 68709, § 6, 7-9-2010; Ord. No. 68121, § 6, 10-10-2008; Ord. No. 67805, § 6, 2007; Ord. No. 67330, § 6, 2006; Ord. No. 66279, § 6, 2004; Ord. No. 64950, § 6, 2000; Ord. No. 64378, § 6, 1998; Ord. No. 63816, § 6, 1996; Ord. No. 63182, § 6, 1994; Ord. No. 62662, § 7, 1992; Ord. No. 62332, § 7, 1991; Ord. No. 62102, § 7, 1990; Ord. No. 62006, § 7, 1990; Ord. No. 61285, § 7, 1989; Ord. No. 59939, § 9, 1986; Ord. No. 59154, § 6, 1984; Ord. No. 58689, § 7, 1982.)

4.26.030 Bi-weekly pay schedule.

Compensations for positions covered by this chapter shall be paid bi-weekly.

(1960 C., § 49.030; 1994 C., § 4.26.030; Ord. No. 52741, § 3, 1964.)

4.26.040 Income sources.

Any salary paid to an employee in the Treasurer's Office shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments and specifically authorized by ordinance. No employee shall receive remuneration from the Treasurer's Office in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary du-

ties, of additional duties which may be imposed upon the employee, or of duties which the employee may undertake or volunteer to perform.

Whenever an employee not on an approved, paid leave, works for a period less than the regularly established number of hours a day, days a week or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's position. The payment of a separate salary for actual hours worked from two (2) or more departments, divisions or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.
(1994 C., § 4.26.040; Ord. No. 71965, § 7, 2-11-2025; Ord. No. 71690, § 7, 7-10-2023; Ord. No. 71550, § 7, 7-18-2022; Ord. No. 69195, § 7, 7-13-2012; Ord. No. 68709, § 7, 7-9-2010; Ord. No. 68121, § 7, 10-10-2008; Ord. No. 67805, § 7, 2007; Ord. No. 67330, § 7, 2006; Ord. No. 66279, § 7, 2004; Ord. No. 64950, § 7, 2000; Ord. No. 64378, § 7, 1998; Ord. No. 63816, § 7, 1996; Ord. No. 63182, § 7, 1994; Ord. No. 62662, § 8, 1992; Ord. No. 62332, § 8, 1991; Ord. No. 62102, § 8, 1990; Ord. No. 62006, § 8, 1990; Ord. No. 61285, § 8, 1989.)

4.26.050 Conversion.

(a) All pay schedules established in Ordinance Number 71690 shall continue in effect until the beginning of the bi-weekly pay period effective upon passage of this chapter.

(b) The Appointing Authority shall establish such procedures as needed to place this chapter into effect and interpret its provision.
(1994 C., § 4.26.050; Ord. No. 71965, § 8, 2-11-2025; Ord. No. 71690, § 8, 7-10-2023; Ord. No. 71550, § 8, 7-18-2022; Ord. No. 69195, § 8, 7-13-2012; Ord. No. 68709, § 8, 7-9-2010; Ord. No. 68121, § 8, 10-10-2008; Ord. No. 67805, § 8, 2007; Ord. No. 67330, § 8, 2006; Ord. No. 66279, § 8, 2004; Ord. No. 65519, § 8, 2002; Ord. No. 64950, § 8, 2000; Ord. No. 64378, § 8, 1998; Ord. No. 63816, § 8, 1996; Ord. No. 63182, § 8, 1994; Ord. No. 62662, § 9, 1992; Ord. No. 62332, § 9, 1991; Ord. No. 62102, § 9, 1990; Ord. No. 62006, § 9, 1990; Ord. No. 61285, § 9, 1989.)

4.26.060 Changes to pay plan.

Whenever the Appointing Authority finds it necessary to add a new class or reallocate the grade of a class of position in the classification plan, the Appointing Authority shall allocate or reallocate the class to an appropriate grade in this chapter and notify the Board of Aldermen of this action.
(1994 C., § 4.26.060; Ord. No. 71965, § 9, 2-11-2025; Ord. No. 71690, § 9, 7-10-2023; Ord. No. 71550, § 9, 7-18-2022; Ord. No. 69195, § 9, 7-13-2012; Ord. No. 68709, § 11, 7-9-2010; Ord. No. 68121, § 10, 10-10-2008; Ord. No. 67805, § 9, 2007; Ord. No. 67330, § 10, 2006; Ord. No. 66279, § 9, 2004; Ord. No. 64950, § 9, 2000; Ord. No. 64378, § 9, 1998; Ord. No. 63816, § 9, 1996; Ord. No. 63182, § 9, 1994.)

4.26.070 Reserved.

Editor's Note:

Ord. No. 69195, § 1, adopted July 13, 2012, repealed § 4.26.070 which pertained to furloughs and derived from Ord. No. 67330, § 9, 2006; Ord. No. 68121, § 9, adopted Oct. 10, 2008; and Ord. No. 68709, § 9, adopted July 9, 2010.

4.26.080 Reserved.

Editor's Note:

Ord. No. 69195, § 1, adopted July 13, 2012, repealed § 4.26.080 which pertained to personal days and derived from Ord. No. 68709, § 10, adopted July 9, 2010.

Chapter 4.28

LICENSE COLLECTOR EMPLOYEES

Editor's Note:

Ord. No. 69197, adopted July 13, 2012, repealed Ch. 4.28 and enacted a new chapter as set out herein. The former Ch. 4.28, §§ 4.28.010—4.28.130, pertained to similar subject matter and derived from Ord.No. 68706, adopted July 9, 2010.

Prior history: Ords. 45178, 45669, 45670, 46432, 46503, 48324, 48325, 52752, 52753, 53567, 54718, 56051, 56499, 56817, 57188, 57363, 57671, 57735, 57802, 58014, 58309, 58697, 59158, 60191, 61282, 62003, 62345, 62666, 63179, 63711, 64309, 64946, 65522, 66398, 67334, 68118, 68706; 1948 C. Ch. 13 § 59; 1960 C. §§ 50.010—50.030

Sections:

4.28.010 Alphabetical list of classes.
4.28.020 General pay schedule.
4.28.030 Appointments.
4.28.040 Starting salary.
4.28.050 Promotion, demotion, reallocation and transfer.
4.28.060 Salary adjustment.
4.28.070 Income sources.
4.28.080 Conversion.
4.28.090 Holidays.
4.28.100 Vacation.
4.28.110 Medical leave.
4.28.120 Classification.

4.28.010 Alphabetical list of classes.

Pursuant to Section 82.390.1, Revised Statues of Missouri, the License Collector is hereby authorized to appoint and employ the following officers and employees with bi-weekly rates, in accordance with the following classification plan, to a grade with rates established in Section 4.28.020 of this chapter.

Class Title	Grade
Accountant I	12G
Accountant II	13G
Accountant III	14G
Administrative Assistant I	10G
Administrative Assistant II	11G
Administrative Assistant III	12G
Administrative Officer I	13M
Administrative Officer II	14M
Administrative Officer III	16M
Assistant Deputy License Collector	16M
Compliance Officer	16M
Director of Communication	11M
Executive Administrator/Human Resource Manager	16M
Field Representative I	9G
Field Representative II	10G
Field Representative III	11G
Legal Counsel/Chief Deputy License Collector	17M
License Clerk I	9G
License Clerk II	10G
License Clerk III	11G

(1994 C., § 4.28.010; Ord. No. 71688, § 2, 7-10-2023; Ord. No. 71552, § 2, 7-18-2022; Ord. No. 71514, § 2, 6-16-2022; Ord. No. 70024, § 2, 6-29-2015; Ord. No. 69197, § 1, 7-13-2012.)

4.28.020 General pay schedule.

The following bi-weekly pay schedule for all pay grades denoted with the suffix G or M shall become effective with the beginning of the first pay period following approval of this chapter:

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
6	968	1452
7	1200	1726
8	1254	1882
9	1200	1726
10	1254	1882
11	1330	2082
12	1387	2310
13	1387	2082
14	1452	2320
15	1550	2640
16	2111	3166
17	3026	4205

(1994 C., § 4.28.020; Ord. No. 71688, § 3, 7-10-2023; Ord. No. 71552, § 3, 7-18-2022; Ord. No. 71514, § 3, 6-16-2022; Ord. No. 70024, § 3, 6-29-2015; Ord. No. 69197, § 2, 7-13-2012.)

4.28.030 Appointments.

The License Collector is authorized to appoint and employ accountants, administrative assistants, administrative officers, assistant deputy license collector, field representatives, and license clerks and such other personnel as are deemed necessary in addition to those enumerated in RSMo 82.390; however, the salaries shall not exceed the amount as set forth in this chapter.

(1994 C., § 4.28.030; Ord. No. 71688, § 4, 7-10-2023; Ord. No. 71552, § 4, 7-18-2022; Ord. No. 71514, § 4, 6-16-2022; Ord. No. 70024, § 4, 6-29-2015; Ord. No. 69197, § 3, 7-13-2012.)

4.28.040 Starting salary.

The License Collector may establish a recruitment rate for a single position or all positions and authorize employment at a figure above the minimum but within the range of salary established for the grade.

(1994 C., § 4.28.040; Ord. No. 71688, § 5, 7-10-2023; Ord. No. 71552, § 5, 7-18-2022; Ord. No. 71514, § 5, 6-16-2022; Ord. No. 70024, § 5, 6-29-2015; Ord. No. 69197, § 4, 7-13-2012.)

4.28.050 Promotion, demotion, reallocation and transfer.

An employee who is transferred, promoted, demoted, or whose position is reallocated after the effective date of this chapter, shall have his or her rate of pay for the new position determined as follows:

A. Promotion: This shall be defined as a change of an employee from a position of one pay grade to a higher pay grade. However, no employee shall be paid less than the minimum rate, nor more than the maximum rate for the new position.

1. When an employee is promoted to a position in the General or Management Schedule the employee's salary shall be set at a rate as deemed appropriate by the License Collector.

B. Demotion: This shall be defined as a change of an employee from a position of one class to a position of another class which has a lower pay grade.

1. If an employee accepts a voluntary demotion, his or her rate of pay shall be reduced to a rate within

the range for the new position. However, no employee shall be paid less than the minimum, nor more than the maximum rate for the new class of position.

C. Reallocation:

1. The salary of an employee which is in excess of the maximum of the range prescribed by this chapter for the grade to which his or her position has been allocated or may be reallocated, shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he or she remains in the class of position, except as otherwise provided by this chapter.

2. If the employee's position is reallocated to a lower pay grade and the rate of pay for the previous position is within the salary range of the new position, his or her salary shall remain unchanged.

3. The salary of an employee whose position is allocated to a higher pay grade shall be determined in accordance with the provisions of this Section 4.28.050.A.1, relating to salary advancement on promotion.

D. Transfer: The salary rate of an employee who transfers to a different position in the same grade, or from one position to another position in same pay grade, regardless of pay schedule, shall remain unchanged, provided that no employee shall be paid less than the minimum rate, nor more than the maximum rate, for the new position.

(1994 C., § 4.28.050; Ord. No. 71688, § 6, 7-10-2023; Ord. No. 71552, § 6, 7-18-2022; Ord. No. 71514, § 6, 6-16-2022; Ord. No. 70024, § 6, 6-29-2015; Ord. No. 69197, § 5, 7-13-2012.)

4.28.060 Salary adjustment.

Salary adjustments for all employees shall be based on considerations of merit or success in fulfilling predetermined performance factors as established by the License Collector.

1. Based upon the service rating of an employee together with the standards of performance established by the License Collector. The License Collector shall determine eligibility for a three (3) percent increase or at the discretion of the License Collector up to a ten (10) percent increase (merit) for exceptional performance of duties.

2. All full-time employees who meet the eligibility requirements of FMLA approval will be entitled to six (6) weeks of paid Family Medical Leave.

3. The compensation of the License Collector may be annually increased by an amount equal to the annually salary adjustment for employees of the city of St. Louis as approved by the Board of Alderman as provided in RSMo § 82.390.1.

a) Any employee whose salary is established in Section 4.28.020, General Pay Schedule, achieving an Overall Performance Rating of Meets Standards or Progressing after fifty-two (52) weeks of continuous service shall be eligible to receive a merit increase.

b) Any employee, whose salary is established in Section 4.28.020, General Pay Schedule, achieving an Overall Performance Rating of Below Standards after fifty-two (52) weeks of continuous service shall not receive a merit increase and must agree to a Mandatory Improvement Plan. The License Collector may authorize different anniversary dates for an employee or groups of employees. The granting of any such increase or decrease in salary shall be made at the beginning of a payroll period following approval of such salary action, by the License Collector.

(1994 C., § 4.28.060; Ord. No. 71688, § 7, 7-10-2023; Ord. No. 71552, § 7, 7-18-2022; Ord. No. 71514, § 7, 6-16-2022; Ord. No. 70024, § 7, 6-29-2015; Ord. No. 69197, § 6, 7-13-2012.)

4.28.070 Income sources.

Any salary paid to an employee of the License Collector shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments specifically authorized by ordinance. No employee shall receive remuneration from the License Collector in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which employee may undertake or volunteer to perform. Whenever an employee not on an approved paid leave works for a period less than the regularly established number of hours a day, days a week, or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's normal work week and the bi-weekly rate for the employee's position. The payment of a separate salary for actual hours worked from two or more departments, divisions, or other units of the City for duties performed for

each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.
(1994 C., § 4.28.070; Ord. No. 71688, § 8, 7-10-2023; Ord. No. 71552, § 8, 7-18-2022; Ord. No. 71514, § 8, 6-16-2022; Ord. No. 70024, § 8, 6-29-2015; Ord. No. 69197, § 7, 7-13-2012.)

4.28.080 Conversion.

The License Collector shall establish such procedures as needed to place this chapter into effect and interpret its provisions.
(1994 C., § 4.28.080; Ord. No. 71688, § 9, 7-10-2023; Ord. No. 71552, § 9, 7-18-2022; Ord. No. 71514, § 9, 6-16-2022; Ord. No. 70024, § 9, 6-29-2015; Ord. No. 69197, § 8, 7-13-2012.)

4.28.090 Holidays.

The License Collector shall grant holiday leave with pay, holiday pay, or compensatory holiday time off in lieu of pay to employees working full-time who are paid a bi-weekly rate on the following days:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Rev. Martin Luther King Jr. Day
Second Friday in February	President Lincoln's Birthday
Third Monday in February	Presidents' Day
Second Monday in May	President Truman's Day
Last Monday in May	Memorial Day
Third Monday in June	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
Second Monday in October	Columbus Day
November 11	Veteran's Day
Fourth Thursday in November	Thanksgiving Day
Day after Thanksgiving	Day after Thanksgiving
December 25	Christmas Day

The License Collector shall not grant holiday leave with pay, holiday pay, or compensatory holiday time off except as provided in this Section 4.28.090. Employees working full-time and paid a bi-weekly rate whose pay is established in this compensation ordinance shall receive leave with pay, or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day of shift. For example, employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday. When the day of observance of a holiday is changed by State of Federal Law, it will be so observed by the City of St. Louis.

When the day of observance of a holiday is changed by State or Federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When on of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one of the above holidays occurs on Saturday, the Preceding Friday shall be observed as the holiday. The License Collector shall determine the manner of granting holidays. When fulltime employees are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked.

Compensation for the holiday shall be in an amount Proportionate to the number of hours and employee is regularly scheduled to work in a day or shift. Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift. The holiday compensation procedures established by this section shall apply to full-time employees paid a bi-weekly rate. Part-time bi-weekly paid employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work. Employees paid on an hourly or per performance basis shall not be entitled to holiday compensation. In the event that the holiday schedule established in this section is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly.
(1994 C., § 4.28.090; Ord. No. 71688, § 10, 7-10-2023; Ord. No. 71552, § 10, 7-18-2022; Ord. No. 71514, § 10, 6-16-2022; Ord. No. 70024, § 10, 6-29-2015; Ord. No. 69197, § 9, 7-13-2012.)

4.28.100 Vacation.

Vacation leave with pay shall be granted to bi-weekly paid employees in permanent positions working one-half (50 percent) time or more. The License Collector may establish additional guidelines and policies to govern the administration of vacation leave benefits.
(1994 C., § 4.28.100; Ord. No. 71688, § 11, 7-10-2023; Ord. No. 71552, § 11, 7-18-2022; Ord. No. 71514, § 11, 6-16-2022; Ord. No. 70024, § 11, 6-29-2015; Ord. No. 69197, § 10, 7-13-2012.)

4.28.110 Medical leave.

Sick leave with pay shall be granted to bi-weekly paid employees in permanent positions working one-half (fifty (50) percent) time or more in accordance with regulations and procedures established by the License Collector.

(1994 C., § 4.28.110; Ord. No. 71688, § 12, 7-10-2023; Ord. No. 71552, § 12, 7-18-2022; Ord. No. 71514, § 12, 6-16-2022; Ord. No. 70024, § 12, 6-29-2015; Ord. No. 69197, § 11, 7-13-2012.)

4.28.120 Classification.

Whenever the License Collector finds it necessary to add a new class or reallocate the grade of a class of position in the classification plan, the License Collector shall allocate or reallocate the class to an appropriate grade in this chapter and notify the Board of Aldermen of his action.

(1994 C., § 4.28.120; Ord. No. 71688, § 13, 7-10-2023; Ord. No. 71552, § 13, 7-18-2022; Ord. No. 71514, § 13, 6-16-2022; Ord. No. 70024, § 13, 6-29-2015; Ord. No. 69197, § 12, 7-13-2012.)

Chapter 4.30

PARKING METER DIVISION EMPLOYEES

Prior ordinance history: Ords. 47548, 48250, 49951, 50850, 52742, 53375, 54438, 55363, 55423, 55675, 55739, 55740, 56047, 56495, 56496, 56794, 56803, 57185, 57186, 57344, 57346, 57668, 57670, 57804, 57805, 58015, 58044

Sections:

4.30.010 Position classes.
4.30.012 Pay schedule.
4.30.015 Starting salary.
4.30.020 Promotion, demotion, transfer, reallocation.
4.30.021 Salary adjustment.
4.30.022 Income sources.
4.30.023 Conversion.
4.30.024 Addition or reallocation of grades.
4.30.025 Reserved.
4.30.026 Reserved.
4.30.040 Meter violation tags.
4.30.050 Notification of drivers—Violation—Penalty.

4.30.010 Position classes.

The following positions of the Parking Division whose duties shall be those indicated by their respective titles, are hereby allocated as listed below and adopted as the classification of the Parking Division:

Class Title	Grade
Chief of Staff	21M
Chief Fiscal Officer	19M
Director of Information and Technology	19M
Parking Administrator	19M
Director of Administration	19M
Deputy Chief of Staff	17M
Director of Communications	17M
Director of Facility Operations	17M
Director of Fiscal Operations	17M
Director of Off Street Parking	17M
Director of Parking Enforcement	17M
Systems Analyst	17M
Human Resource Manager	17M
Accounting Manager	16M
Cybersecurity Specialist	16M
Special Projects Coordinator	15M
Fleet Manager	15M
Accountant II	15G
Custodial Manager	14M
Executive Administrative Assistant	14M
Maintenance Supervisor	14M
Compliance Inspector	14G
Accountant I	13G
Administrative Clerk II	13G
Garage Manager II	13G
Courier	13G
Parking Enforcement Supervisor	13G
Garage Manager I	12G
Payroll Specialist	12G
Human Resource Assistant	12G
Account Clerk	12G
Parking Enforcement Officer II	12G
Maintenance Worker II	12G
Assistant Garage Manager	11G
IT Support Technician	11G
Administrative Clerk I	11G
Maintenance Worker I	11G
Parking Enforcement Officer I	10G

Class Title	Grade
Custodian II	10G
Parking Attendant II	10G
Security Guard	10G
Custodian I	8G
Parking Attendant I	8G

(1960 C., § 51.010; 1994 C., § 4.30.010; Ord. No. 71967, § 2, 2-11-2025; Ord. No. 71689, § 2, 7-10-2023; Ord. No. 71551, § 2, 7-18-2022; Ord. No. 69196, § 2, 7-13-2012; Ord. No. 68707, § 2, 7-9-2010; Ord. No. 68120, § 2, 10-10-2008; Ord. No. 67806, § 2, 2007; Ord. No. 67331, § 2, 2006; Ord. No. 66382, § 2, 2004; Ord. No. 65518, § 2, 2002; Ord. No. 64947, § 2, 2000; Ord. No. 64379, § 2, 1998; Ord. No. 63817, § 2, 1996; Ord. No. 63181, § 2, 1994; Ord. No. 62663, §§ 2, 3, 1992; Ord. No. 62333, §§ 2, 3, 1991; Ord. No. 62103, §§ 2, 3, 1990; Ord. No. 62007, §§ 2—5, 1990; Ord. No. 61281, §§ 2—5, 1989; Ord. No. 59942, §§ 2, 3, 1986; Ord. No. 59468, §§ 2, 3, 1985; Ord. No. 59156, §§ 2, 3, 4, 1984.)

City Counselor Ops.: 9811, 9867

4.30.012 Pay schedule.

The following bi-weekly pay schedule for all grades denoted with the suffix "G" or "M" shall become effective beginning with the bi-weekly pay period starting the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
7	840	1264
8	912	1374
9	989	1492
10	1074	1625
11	1169	1768
12	1270	1923
13	1400	2124
14	1605	2436
15	1839	2796
16	2110	3207
17	2421	3684
18	2777	4230
19	3189	4858
20	3662	5580
21	3951	6024
22	4263	6503
23	4601	7021

(1994 C., § 4.30.012; Ord. No. 71967, § 3, 2-11-2025; Ord. No. 71689, § 3, 7-10-2023; Ord. No. 71551, § 3, 7-18-2022; Ord. No. 69196, § 3, 7-13-2012; Ord. No. 68707, § 3, 7-9-2010; Ord. No. 68120, § 3, 10-10-2008; Ord. No. 67806, § 3, 2007; Ord. No. 67331, § 3, 2006; Ord. No. 66382, § 3, 2004; Ord. No. 65518, § 3, 2002; Ord. No. 64947, § 3, 2000; Ord. No. 64379, § 3, 1998; Ord. No. 63817, § 3, 1996; Ord. No. 63181, § 3, 1994.)

4.30.015 Starting salary.

The minimum rate of pay for a position shall be paid upon original appointment to the class, unless the City Treasurer (hereinafter referred to as the "Appointing Authority") finds that it is impractical to recruit employees with adequate qualifications at the minimum rate. If an advanced starting salary is necessary, the Appointing Authority may establish a recruitment rate for a single position or all positions in a class and authorize employment at a figure above the minimum but within the regular range of salary established for the class.

(1994 C., § 4.30.015; Ord. No. 71967, § 4, 2-11-2025; Ord. No. 71689, § 4, 7-10-2023; Ord. No. 71551, § 4, 7-18-2022; Ord. No. 69196, § 4, 7-13-2012; Ord. No. 68707, § 4, 7-9-2010; Ord. No. 68120, § 4, 10-10-2008; Ord. No. 67806, § 4, 2007; Ord. No. 67331, § 4, 2006; Ord. No. 66382, § 4, 2004; Ord. No. 64947, § 4, 2000; Ord. No. 64379, § 4, 1998; Ord. No. 63817, § 4, 1996; Ord. No. 63181, § 4, 1994.)

4.30.020 Promotion, demotion, transfer, reallocation.

An employee who is promoted, demoted, transferred or whose position is reallocated after the effective date of this chapter, shall have his or her rate of pay for the new position determined as follows:

(a) *Promotion:* This shall be defined as a change of an employee from a position of one class to a position of another class with a higher pay grade.

(1) When an employee is promoted to a position in the General and Management Schedule, the employee's salary shall be set at a rate deemed appropriate by the Appointing Authority. Such salary determination shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position.

(b) *Demotion:* This shall be defined as a change of an employee from a position of one class to a position of another class which has a lower pay grade.

(1) If an employee is demoted for disciplinary reasons his or her rate of pay shall be established at a rate within the range for the new position to be determined by the Appointing Authority.

(c) *Transfer:* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, shall remain unchanged, provided that no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(d) *Reallocation:*

(1) The salary of an employee which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his or her position has been allocated or may be reallocated shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he or she remains in the class of position, except as otherwise provided by this chapter.

(2) If the employee's position is reallocated to a class in a lower pay grade and the rate of pay for the previous position is within the salary range of the new position, his or her salary shall remain unchanged.

(3) The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of this Section 4.30.020(a)(1) relating to salary advancement on promotion.

(1960 C., § 57.010; 1994 C., § 4.30.020; Ord. No. 71967, § 5, 2-11-2025; Ord. No. 71689, § 5, 7-10-2023; Ord. No. 71551, § 5, 7-18-2022; Ord. No. 69196, § 5, 7-13-2012; Ord. No. 68707, § 5, 7-9-2010; Ord. No. 68120, § 5, 10-10-2008; Ord. No. 67806, § 5, 2007; Ord. No. 67331, § 5, 2006; Ord. No. 66382, § 5, 2004; Ord. No. 64947, § 5, 2000; Ord. No. 64379, § 5, 1998; Ord. No. 63817, § 5, 1996; Ord. No. 63181, § 5, 1994; Ord. No. 62663, § 4, 1992; Ord. No. 62333, § 4, 1991; Ord. No. 62103, § 4, 1990; Ord. No. 62007, § 6, 1990; Ord. No. 61281, § 7, 1989; Ord. No. 59942, §§ 4, 5, 1986; Ord. No. 59468, § 4, 1985; Ord. No. 59156, § 5, 1984; Ord. No. 58690, § 5, 1982.)

4.30.021 Salary adjustment.

Salary adjustments for all employees shall be based on considerations of merit, equity, or success in fulfilling predetermined performance factors as established by the Appointing Authority.

(a) Based upon the service rating of an employee together with the standard of performances established by the Appointing Authority, the Appointing Authority shall determine eligibility for up to a two (2) percent increase or at the discretion of the Appointing Authority up to a ten (10) percent increase for exceptional performance of duties.

(b) All full-time employees will receive a three (3) percent increase in pay.

(c) All full-time employees who meet the eligibility requirements pursuant to FMLA will be entitled to six (6) weeks of paid leave.

(1994 C., § 4.30.021; Ord. No. 71967, § 6, 2-11-2025; Ord. No. 71689, § 6, 7-10-2023; Ord. No. 71551, § 6, 7-18-2022; Ord. No. 69196, § 6, 7-13-2012; Ord. No. 68707, § 6, 7-9-2010; Ord. No. 68120, § 6, 10-10-2008; Ord. No. 67806, § 6, 2007; Ord. No. 67331, § 6, 2006; Ord. No. 66382, § 6, 2004; Ord. No. 64947, § 6, 2000; Ord. No. 64379, § 6, 1998; Ord. No. 63817, § 6, 1996; Ord. No. 63181, § 6, 1994; Ord. No. 62663, § 5, 1992; Ord. No. 62333, § 5, 1991; Ord. No. 62103, § 5, 1990; Ord. No. 62007, § 7, 1990; Ord. No. 61281, § 8, 1989; Ord. No. 59942, § 6, 1986; Ord. No. 59468, § 5, 1985; Ord. No. 59156, § 6, 1984; Ord. No. 58690, § 5, 1982.)

4.30.022 Income sources.

Any salary paid to an employee in the Parking Division of the Treasurer's Office shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments and specifically authorized by ordinance. No employee shall receive remuneration from the Parking Division in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which the employee may undertake or volunteer to perform.

Whenever an employee not on an approved, paid leave works for a period less than the regularly established number of hours a day, days a week or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's position. The payment of a separate salary for actual hours worked from two or more departments, divisions or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.

(1994 C., § 4.30.022; Ord. No. 71967, § 7, 2-11-2025; Ord. No. 71689, § 7, 7-10-2023; Ord. No. 71551, § 7, 7-18-2022; Ord. No. 69196, § 7, 7-13-2012; Ord. No. 68707, § 7, 7-9-2010; Ord. No. 68120, § 7, 10-10-2008; Ord. No. 67806, § 7, 2007; Ord. No. 67331, § 7, 2006; Ord. No. 66382, § 7, 2004; Ord. No. 64947, § 7, 2000; Ord. No. 64379, § 7, 1998; Ord. No. 63817, § 7, 1996;

Ord. No. 63181, § 7, 1994; Ord. No. 62663, § 6, 1992; Ord. No. 62333, § 6, 1991; Ord. No. 62103, § 6, 1990; Ord. No. 62007, § 8, 1990; Ord. No. 61281, § 9, 1989; Ord. No. 59942, § 7, 1986; Ord. No. 59468, § 6, 1985; Ord. No. 59156, § 7, 1984; Ord. No. 58690, § 7, 1982.)

4.30.023 Conversion.

(a) All pay schedules established in Ordinance Number 71689 shall continue in effect until the beginning of the bi-weekly pay period effective upon passage of this chapter.

(b) The Appointing Authority shall establish such procedures as needed to place this chapter into effect and interpret its provision.

(1994 C., § 4.30.023; Ord. No. 71967, § 8, 2-11-2025; Ord. No. 71689, § 8, 7-10-2023; Ord. No. 71551, § 8, 7-18-2022; Ord. No. 69196, § 8, 7-13-2012; Ord. No. 68707, § 8, 7-9-2010; Ord. No. 68120, § 8, 10-10-2008; Ord. No. 67806, § 8, 2007; Ord. No. 67331, § 8, 2006; Ord. No. 66382, § 8, 2004; Ord. No. 65518, § 8, 2002; Ord. No. 64947, § 8, 2000; Ord. No. 64379, § 8, 1998; Ord. No. 63817, § 8, 1996; Ord. No. 63181, § 8, 1994; Ord. No. 62663, § 7, 1992; Ord. No. 62333, § 7, 1991; Ord. No. 59942, § 8, 1986.)

4.30.024 Addition or reallocation of grades.

Whenever the Appointing Authority finds it necessary to add a new class or reallocate the grade of a class of position in the classification plan, the Appointing Authority shall allocate or reallocate the class to an appropriate grade in this chapter and notify the Board of Aldermen.

(1994 C., § 4.30.024; Ord. No. 71967, § 9, 2-11-2025; Ord. No. 71689, § 9, 7-10-2023; Ord. No. 71551, § 9, 7-18-2022; Ord. No. 69196, § 9, 7-13-2012; Ord. No. 68707, § 11, 7-9-2010; Ord. No. 68120, § 9, 10-10-2008; Ord. No. 67806, § 9, 2007; Ord. No. 67331, § 10, 2006; Ord. No. 66382, § 9, 2004; Ord. No. 64947, § 9, 2000; Ord. No. 64379, § 9, 1998; Ord. No. 63181, § 9, 1994; Ord. No. 62663, § 8, 1992; Ord. No. 62333, § 8, 1991; Ord. No. 59942, § 9, 1986.)

4.30.025 Reserved.

Editor's Note:

Ord. No. 69196, § 1, adopted July 13, 2012, repealed § 4.30.025 which pertained to furloughs and derived from Ord. No. 67331, § 9, 2006; Ord. No. 68120, § 9, adopted Oct. 10, 2008; and Ord. No. 68707, § 9, adopted July 9, 2010.

4.30.026 Reserved.

Editor's Note:

Ord. No. 69196, § 1, adopted July 13, 2012, repealed § 4.30.026 which pertained to personal days and derived from Ord. No. 68707, § 9, adopted July 9, 2010.

4.30.040 Meter violation tags.

A. The Parking Meter Division of the Treasurer's Office is hereby authorized to issue parking meter violation tags, to issue parking tags for violation of parking signs throughout the City and to issue meter violation tags and parking tags in Washington Square and City Hall parking lots.

B. Meter violation tags shall be issued when any vehicle shall be illegally parked in, or located in a parking meter zone when the time signal shows a violation, or when the vehicle is parked longer than the time limit set by ordinance.

C. Parking violation tags shall be issued when any vehicle shall be illegally parked in or located in a no parking zone or when the vehicle is parked longer than the time limit set by ordinance. (1960 C., § 51.020(part); 1994 C., § 4.30.040; Ord. No. 57077, § 1(part), 1976.)

4.30.050 Notification of drivers—Violation—Penalty.

A. The Parking Meter Division of the Treasurer's Office shall notify the driver of the illegally parked vehicle by handing him or affixing on the vehicle a violation tag. Such tag shall contain instructions permitting the owner of the vehicle or driver to appear in person or mail the sum of three dollars ($3.00) for a parking meter violation or the sum of ten dollars ($10.00) for a parking violation within seven (7) days to the traffic violation bureau, except a violation for parking during hours of street cleaning which shall be governed by the provisions contained in Title 17. The instructions on said tag shall state that the payment of any above designated fine shall be received in lieu of the penalty hereinafter provided in full satisfaction of such violation.

B. Upon failure to pay such fine within seven days, the owner of the vehicle if found guilty of such parking violation, shall be deemed guilty of a misdemeanor and upon conviction shall be fined not less than three dollars ($3.00) and not more than ten dollars ($10.00) for each such meter violation and not less than ten dollars ($10.00) and not more than one hundred dollars ($100.00) for each such other parking violation,

except that any penalty imposed for violation of the parking restrictions of posted notices on streets to be cleaned during the hours posted prohibiting such parking shall be governed by the provisions contained in Title 17. (1960 C., § 51.020(part); 1994 C., § 4.30.050; Ord. No. 57077, § 1(part), 1980.)

Chapter 4.32

CONSTABLE AND MAGISTRATE SALARIES

Editor's Note:

Text omitted as obsolete.

Cases:

St. Louis County was not authorized to fix criminal and civil fees of constables serving magistrate courts. *State ex rel. O'Brien v. Roos,* 397 S.W. 2d 578 (1965).

Chapter 4.34

RECORDER OF DEEDS EMPLOYEES

Editor's Note:

Ord. No. 71174, § 1, adopted July 9, 2020, amended the Code by, in effect, repealing former Ch. 4.34, §§ 4.34.010—4.34.100, and §§ 2—7 of said ordinance added a new Ch. 4.34, §§ 4.34.010—4.34.060. Former Ch. 4.34 pertained to similar subject matter, and derived from 1994 Code, §§ 4.34.010—4.34.100; Ord. No. 70336, adopted July 14, 2016; and Ord. No. 69192, adopted July 13, 2012.

Prior history: Ords. 47778, 49949, 52751, 53181, 54484, 56043, 56500, 56795, 57182, 57352, 57667, 57803, 58030, 58310, 58692, 59153, 59944, 61280, 62000, 62340, 62668, 63158, 63701,64308, 64943, 65517, 66399, 67329, 68124 and 68744; 1960 C. § 50.010; 1960 C. § 53.010

Sections:

4.34.010 Alphabetical list of classes.

4.34.020 General pay schedule.

4.34.030 Increases.

4.34.040 Salary adjustments.

4.34.050 New classifications.

4.34.060 Holidays.

4.34.010 List of Classes.

Pursuant to RSMo 82.610, the Recorder of Deeds is hereby authorized to appoint and employ the following officers and employees with bi-weekly rates, in accordance with the following classification plan, to a grade with rates established in Section 4.34.020 of this chapter.

Title	Code	Grade
Recorder of Deeds	R101	21E
Chief Deputy Recorder	R102	21M
Human Resources Manager	R110	20M
Information Systems Administrator	R201	20M
Administrative Assistant	R120	18M
Recorder Cashier Manager	R301	18M
Recording Manager	R401	18M
Technical Support Specialist II	R221	18P
Technical Support Specialist I	R222	17P
Data Processing Manager	R211	16G
Recorder Department Supervisor	R411	16G
Records Document Specialist II	R421	16G
Secretary to the Recorder	R121	13G
Recorder Cashier Representative	R310	15G
Recorder Department Assistant Supervisor	R412	15M
Recorder Document Specialist	R461	15M
Customer Service Application Specialist II	R431	14G
Computer Support Specialist	R223	13G
Customer Service Application Specialist I	R432	13G
Auditor I	R320	13G
Receptionist	R122	12G
Archives Researcher II	R441	12G
Recorder Clerk III	R451	12G
Archives Researcher I	R442	11G
Recorder Clerk II	R452	11G
Recorder Clerk I	R453	10G

(Ord. No. 71964, § 2, 2-11-2025; Ord. No. 71687, § 2, 7-10-2023; Ord. No. 71511, § 2, 6-16-2022; Ord. No. 71174, § 2, 7-9-2020.)

4.34.020 General pay schedule.

(a) There is hereby adopted as the compensations schedule for all pay grades, which are denoted by the suffix "E", "G", "M" and "P" in Section 4.34.010 of this chapter, the following ranges of salary beginning with the bi-weekly pay period concurrent with the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
8	1,027	1,604
9	1,113	1,740
10	1,208	1,889
11	1,316	2,056
12	1,429	2,234
13	1,575	2,824
14	1,807	2,742

Grade	Minimum	Maximum
15	2,070	3,242
16	2,374	3,718
17	2,724	4,292
18	3,125	4,595
19	3,589	5,633
20	4,122	6,470
21	4,448	6,685
22	4799	7,540
23	5,178	8,140

(Ord. No. 71964, § 3, 2-11-2025; Ord. No. 71687, § 3, 7-10-2023; Ord. No. 71511, § 3, 6-16-2022; Ord. No. 71174, § 3, 7-9-2020.)

4.34.030 Increases.

(a) All pay schedules established in Ordinance Number 71174 shall continue in effect until the beginning of the bi-weekly pay period effective upon approval by the mayor.

(1) Based upon the service rating of an employee together with the standards of performance established by the Recorder of Deeds shall determine eligibility for a three (3) percent increase or at the discretion of the Recorder of Deeds up to a ten (10) percent increase (merit) for exceptional performance of duties.

(2) Effective beginning with the bi-weekly pay period starting June 22, 2025, all employees whose salary is established in Section 4.34.010(a) or 4.34.010(b) - General, Management, and Trades Pay Schedules, who would be eligible to receive an annual step increase as a result of a "Successful" or "Highly Successful" Overall Rating on their regular Service Rating date will instead receive a three (3) percent increase regardless of their current rate or place in the pay schedule (fiscal years 2025 and 2026).

The compensation of the Recorder of Deeds in a city not within a county may be annually increased by an amount equal to the annual salary adjustment for employees of such a city as approved by the Board of Aldermen of such city as governed by RSMo 82.599.1.

(Ord. No. 71964, § 4, 2-11-2025; Ord. No. 71687, § 4, 7-10-2023; Ord. No. 71511, § 4, 6-16-2022; Ord. No. 71174, § 4, 7-9-2020.)

4.34.040 Salary adjustments.

(a) An appointing authority may evaluate the performance of an employee whose salary is established in Section 4.34.020(a) of this chapter for the purpose of a salary adjustment.

(1) Exceptional performance of duties: The Recorder of Deeds may increase the salary of an employee who demonstrates exceptional performance of duties after serving twenty-six (26) weeks of employment at the same rate in the salary range by not more than ten (10) percent or to the closest step in the pay range which provides not more than a ten (10) percent increase; this may be in addition to any merit increase received.

(2) Substandard performance of duties: The Recorder of Deeds may reduce the salary of an employee whose level of performance or assigned duties is significantly diminished and no longer warrants payment at the current rate within the range as provided in Section 4.34.020(a). The granting of any such increase or decrease in salary shall be made at the beginning of a payroll period.

(b) An appointing authority may approve a within-range salary adjustment in any whole dollar increment up to ten (10) percent of an employee's bi-weekly base.

(c) The pay of any employee may be decreased as a disciplinary action at the discretion of the Recorder of Deeds. Any such decrease shall be made in accordance with established disciplinary procedures. The decrease shall not be greater than fifteen (15) percent of the current salary range. The decrease may be below the minimum of the pay range for the class. At the discretion of the Recorder of Deeds a determination may be made for a specific number of bi-weekly periods or for an undetermined time.

(d) All full-time employees who meet the eligibility requirements for family medical leave approval shall be entitled to six (6) weeks of paid family medical leave upon passage of this chapter.

(Ord. No. 71964, § 5, 2-11-2025; Ord. No. 71687, § 5, 7-10-2023; Ord. No. 71511, § 5, 6-16-2022; Ord. No. 71174, § 5, 7-9-2020.)

4.34.050 New classifications.

Whenever the Recorder of Deeds finds it necessary to add a new class or reallocate the grade of a class of position in the classification plan, the Recorder shall allocate or reallocate the class to an appropriate grade or add or amend any section of this chapter and notify the Board of Aldermen of his action.

(Ord. No. 71964, § 6, 2-11-2025; Ord. No. 71687, § 6, 7-10-2023; Ord. No. 71511, § 6, 6-16-2022; Ord. No. 71174, § 6, 7-9-2020.)

4.34.060 Holidays.

The Recorder of Deeds shall grant holiday leave with pay, holiday pay, or compensatory holiday time off in lieu of pay to employees working full-time who are paid a bi-weekly rate on the following days:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Rev. Martin Luther King Jr. Day
February 20	President's Day
Last Monday in May	Memorial Day
First Monday after June 19th	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
November 12	Veterans' Day
Fourth Thursday in November	Thanksgiving Day
Fourth Friday in November	Day after Thanksgiving Day
December 25	Christmas Day

The Recorder of Deeds shall not grant holiday leave with pay, holiday pay, or compensatory holiday time off except as provided in this section.

Employees working full-time and paid a bi-weekly rate whose pay is established in this chapter shall receive leave with pay, pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day or shift. For example, employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday.

When the day of observance of a holiday is changed by state or federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by state or federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When one (1) of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one (1) of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

The Recorder of Deeds shall determine the manner of granting holidays. When full-time employees are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked. Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift.

Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift.

If an employee is docked from the payroll for one hour or more on the full scheduled workday preceding a holiday, the full scheduled work day following a holiday or on a scheduled holiday, the employee shall not be compensated for the holiday.

The holiday compensation procedures established by this section shall apply to fulltime employees paid a bi-weekly rate. Part-time bi-weekly paid employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work. Employees paid on an hourly or per performance basis shall not be entitled to holiday compensation.

In the event that the holiday schedule established in this section is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly.
(Ord. No. 71964, § 7, 2-11-2025; Ord. No. 71687, § 7, 7-10-2023; Ord. No. 71511, § 7, 6-16-2022; Ord. No. 71174, § 7, 7-9-2020.)

Chapter 4.36

SHERIFF'S OFFICE EMPLOYEES

Editor's Note:

Ord. No. 69190, adopted July 13, 2012, repealed Ch. 4.36 and enacted a new chapter as set out herein. The former Ch. 4.36, §§ 4.36.010—4.36.150, pertained to similar subject matter and derived from Ord. No. 68708, adopted July 9, 2010.

Prior history: Ords. 44831, 45605, 47279, 50173, 52745, 53372, 53732, 54454, 55364, 55670, 55831, 56056, 56180, 56497, 56801, 57180, 57664, 57775, 58022, 58693, 59152, 59938, 60724, 61279, 62001, 62344, 62665, 63228, 63706, 64353, 64944, 64982, 65525, 66742, 67332, 68123 and 68708; 1948 C. Ch. 2 § 4; 1960 C. § 54.010

City Counselor Ops.: 8178

Sections:

4.36.010	**Grades.**
4.36.015	**Adjustments effective July 2, 2023.**
4.36.020	**Official pay schedule of grades.**
4.36.030	**Shift differential compensation—Maximum salary—Increases.**
4.36.040	**Starting salary.**

4.36.050 Promotion, demotion, reallocation and transfer.
4.36.060 Salary adjustment.
4.36.070 Income sources.
4.36.080 Conversion.
4.36.090 Changes to pay plan.
4.36.100 Military leave.
4.36.110 Leave of absence and family/medical leave.
4.36.120 Holidays.
4.36.130 Jury and witness leave.
4.36.140 Compensation for Sheriff's Attorney.

4.36.010 Grades.

The following command personnel and deputies in the Sheriff's Office as may be appointed under provisions of RSMo 57.530, 1978 shall be compensated not in excess of compensation as established in accordance with Section 4.36.020 and subsequent sections of this chapter.

Title	Grade
Administrative Aide to the Sheriff	18G
Major	17G
Captain	16G
Specialized Professional Skill Deputy	15G
Lieutenant	14G
Chief Execution Deputy - Attorney	13G
Sergeant	13G
Deputy	12G

(1994 C., § 4.36.010; Ord. No. 71968, § 1, 2-11-2025; Ord. No. 71691, § 1, 7-10-2023; Ord. No. 70053, § 2, 7-16-2015; Ord. No. 69190, § 2, 7-13-2012.)

4.36.015 Adjustments effective July 2, 2023.

(1) Effective beginning with the bi-weekly pay period starting July 2, 2023, all employees whose salary is established in Section 4.36.010, who would be eligible to receive an increase receive a three (3) percent increase regardless of their current rate or place in the pay schedule.

(2) Effective beginning with the bi-weekly pay period starting July 2, 2023, all employees whose salary is established in Section 4.36.010, who would be eligible to receive an annual step increase of based on performance review and approval of the Sheriff will receive a step increase and will be implemented on an individual's anniversary date as achieves a successful merit raise. (Ord. No. 71968, § 2, 2-11-2025; Ord. No. 71691, § 2, 7-10-2023; Ord. No. 71509, § 2, 6-16-2022.)

4.36.020 Official pay schedule of grades.

There is hereby adopted as the compensation schedule for all pay ranks established in Section 4.36.010 beginning with the bi-weekly pay period starting with the effective date of this chapter. There is hereby adopted as a minimal and maximum pay range and a matrix reflecting suggested salary increases within the pay range for all classification grades of positions in Section 4.36.010 of this chapter, beginning with the bi-weekly pay period concurrent with the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
12	1,371	2,453
13	1,516	2,712
14	1,744	3,118
15	2,005	3,581
16	2,306	4,117
17	2,653	4,733
18	3,050	5,436

Matrix

Step	12	13	14	15	16	17	18
1	1371	1516	1744	2005	2306	2653	3050
2	1399	1546	1779	2046	2355	2707	3111
3	1427	1578	1815	2087	2401	2761	3174
4	1455	1610	1852	2129	2449	2817	3238
5	1485	1642	1890	2172	2500	2874	3303
6	1516	1676	1929	2218	2549	2931	3370
7	1546	1710	1967	2262	2601	2991	3437
8	1578	1745	2007	2306	2654	3052	3507
9	1610	1780	2048	2355	2708	3113	3577
10	1642	1816	2089	2402	2762	3175	3649
11	1676	1853	2132	2449	2818	3240	3723
12	1710	1891	2175	2501	2875	3305	3798
13	1745	1930	2220	2550	2933	3372	3875
14	1780	1968	2264	2602	2992	3439	3954
15	1816	2009	2309	2654	3052	3509	4032
16	1853	2049	2357	2708	3115	3579	4114
17	1891	2090	2404	2762	3177	3651	4197
18	1930	2133	2452	2818	3241	3726	4282
19	1969	2176	2503	2875	3307	3800	4368
20	2009	2221	2552	2933	3373	3877	4455
21	2049	2265	2604	2993	3440	3956	4545
22	2090	2310	2657	3053	3509	4036	4636
23	2133	2359	2711	3115	3580	4116	4730
24	2177	2405	2766	3178	3652	4199	4823
25	2221	2453	2821	3241	3726	4284	4921
26	2265	2504	2878	3307	3801	4370	5021
27	2310	2554	2937	3373	3878	4458	5122
28	2359	2607	2996	3440	3957	4548	5224
29	2405	2658	3056	3510	4036	4638	5329

Step	12	13	14	15	16	17	18
30	2453	2712	3118	3581	4117	4733	5436

(1994 C., § 4.36.020; Ord. No. 71968, § 3, 2-11-2025; Ord. No. 71691, § 4, 7-10-2023; Ord. No. 71509, § 4, 6-16-2022; Ord. No. 70053, § 3, 7-16-2015; Ord. No. 69190, § 3, 7-13-2012.)

4.36.030 Shift differential compensation—Maximum salary—Increases.

A. A shift differential compensation for certain work assignments may be paid. The appointing authority shall determine the work assignments or activities performed for which shift differential compensation shall be paid.

Before shift differential compensation may be made an employee must have completed five (5) hours of regular employment before 7:00 a.m. or five (5) hours after 3:00 p.m. in the twenty-four-hour period which begins at the employees' normal reporting time. An employee shall be paid one and zero one-hundredths (1.00) percent of the employee's regular base bi-weekly rate for each eligible shift worked in a bi-weekly pay period. An employee shall work a complete eligible shift to receive shift differential compensation.

Shift differential shall not be paid to employees who work part-time, or full-time regular employees docked for any portion of a shift. An employee shall receive shift differential for working a portion of an eligible shift. Shift differential shall only be paid for whole hours worked, providing the portion of the shift not worked is charged to paid leave. A fraction of an hour shall not be counted toward the payment of the differential. An employee shall not receive shift differential compensation for any overtime worked that is not part of their regular schedule.

Employees who work on a Saturday and/or Sunday shall be paid a weekend differential. This differential shall be one and zero one-hundredths (1.00) percent of an employee's base bi-weekly rate and shall not be paid for any overtime worked that is not part of an employee's regular schedule. An employee shall receive weekend differential for working a portion of an eligible day. This differential shall only paid for whole hours worked, providing the portion of the day not worked is charged to paid leave. A fraction of an hour shall not be counted toward the payment of the differential. Weekend differential shall not be paid to employees compensated on an hourly or per-performance basis or to bi-weekly paid employees who work part-time or full-time regular employees docked for any portion of a day. The appointing authority may approve the payment of hiring incentives to recruit qualified personnel for positions that are difficult to fill. Hiring incentives shall be in any amount up to twenty-five (25) percent of the annual salary of the position for which the incentive is to be paid.

An employee who is appointed to a position requiring advanced technical skills or professional qualifications may be paid at a rate up to ten (10) percent higher than prescribed for the class. Such advancement shall be made solely on the basis that the employee possesses exceptional academic qualifications related to the duties of the position. The appointing authority may also establish other bonus, incentive, or reimbursement programs to encourage current employees to attain registration, licensure, certification, or proof of professional mastery when it is deemed to be in the best interest of the service, or when such credentials are clearly recognized as adding to the capability of individuals in that area. Incentives, bonuses, or reimbursements conveyed under such programs would not result in an employee being ruled ineligible for bonuses or salary increases permitted under other sections of this chapter.

The appointing authority may establish a location allowance for positions which are difficult to fill at specific duty stations. This allowance shall be in an amount up to ten percent of the median of the pay range of the position for which the allowance is to be paid. The location allowance shall be considered an addition to pay and shall not change the employee's base rate.

B. No employee shall be paid at the rate lower than the minimum or higher than the maximum of the salary range established for the class to which his/her position has been allocated, except as otherwise provided in this chapter.

C. When a new employee is approved under Section 57.530 RSMo, 1978, the annual rate of compensation shall be twenty-six (26) times the first or lowest step within each rank or position.

D. Deputies and assistants in the Sheriff's Office may receive such hourly, daily or other rate for special services for special services assigned by the Sheriff, when such special services are for additional work over and above the regularly assigned working hours and

payment of such special service is being taxed as costs in the particular case or circumstance and deposit of such cost is made in advance of such special services.
(1994 C., § 4.36.030; Ord. No. 71968, § 4, 2-11-2025; Ord. No. 71691, § 4, 7-10-2023; Ord. No. 71509, § 5, 6-16-2022; Ord. No. 70053, § 4, 7-16-2015; Ord. No. 69190, § 4, 7-13-2012.)

4.36.040 Starting salary.

The minimum rate of pay for a position shall be paid upon original appointment to the class, unless the appointing authority finds that it is impossible to recruit employees with adequate qualifications at the minimum rate.

If an advanced starting salary is necessary, the appointing authority may establish a recruitment rate for a single position or all positions in a class and authorize employment at a figure above the minimum but within the regular range of salary established for the class.
(1994 C., § 4.36.040; Ord. No. 71968, § 5, 2-11-2025; Ord. No. 71691, § 5, 7-10-2023; Ord. No. 71509, § 6, 6-16-2022; Ord. No. 70053, § 5, 7-16-2015; Ord. No. 69190, § 5, 7-13-2012.)

4.36.050 Promotion, demotion, reallocation and transfer.

An employee who is transferred, promoted, demoted, or whose position is reallocated after the effective date of this chapter, shall have his or her rate of pay for the new position determined as follows:

A. *Promotion.* This shall be defined as a change of an employee from a position of one class to a position of another class with higher pay grade.

1. When an employee is promoted to a position in the General Schedule, the employee's salary shall be set at a rate which is five (5) percent higher than the rate received immediately prior to promotion. The Appointing Authority may approve up to a twenty (20) percent salary adjustment when such action is needed to attract experienced, qualified candidates for a position. Such salary determination shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

2. Temporary Promotions. Promotions of employees regardless of status, made for a limited duration, shall result in a salary adjustment as in paragraph A.1 of this section. Upon expiration of the temporary promotion, the employee shall be returned to his/her former rate of pay, adjusted by any increases the employee may have received in the absence of the temporary promotion. In no case shall the employee's salary be above the maximum of the salary range.

B. *Demotion.* This shall be defined as a change of an employee to a position of one class to a position of another class which has a lower pay grade.

1. If an employee accepts a voluntary demotion, his or her rate of pay shall be reduce d to a rate within the range for the new position. The appointing authority may approve up to a ten (10) percent salary decrease upon demotion. However, no employee shall be paid less than the minimum nor more than the maximum rate for the new class of position.

C. *Reallocation.*

1. The salary of an employee which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his or her position has been allocated or may be reallocated shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he or she remains in the class of position, except as otherwise provided by this chapter.

2. If the employee's position is reallocated to class in a lower pay grade and the rate of pay for the previous position is within the salary range of the new position, his or her salary shall remain unchanged.

3. The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of this subsection A.1 of this section relating to salary advancement on promotion.

D. *Transfer.* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, regardless of pay schedule, shall remain unchanged, provided that no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position.
(1994 C., § 4.36.050; Ord. No. 71968, § 6, 2-11-2025; Ord. No. 71691, § 6, 7-10-2023; Ord. No. 71509, § 7, 6-16-2022; Ord. No. 70053, § 6, 7-16-2015; Ord. No. 69190, § 6, 7-13-2012.)

4.36.060 Salary adjustment.

A. A decrease in the salary range for poor performance of the duties of the position or for job perfor-

mance which does not warrant continued pay at an advanced rate in the salary range shall be made in accordance with standards established by the appointing authority.

1. *Exceptional Performance of Duties.* The appointing authority of an employee who demonstrates exceptional performance of duties or outstanding qualifications may advance the employee, by not more than ten (10) percent after twenty-six (26) weeks of employment at a rate in the salary range which may be in addition to any merit increase received.

2. *Substandard Performance of Duties.* The appointing authority of an employee whose level of performance is significantly diminished and no longer warrants payment at the current rate within the range may be decreased to a lower rate in the salary range.

B. The pay of any employee may be decreased as a disciplinary action by an appointing authority to a lower rate or step within a salary range. The decrease shall not be greater than fifteen (15) percent of the employee's current salary rate. In no case shall the decrease be below the minimum of the pay range for the class. The appointing authority may determine that the pay decrease shall be effective for a specific number of bi-weekly pay periods, providing, however, that such decrease shall not be effective for more than twenty six (26) weeks.

C. The appointing authority may establish procedures for the review and approval of within-range salary adjustments to correct or mitigate serious and demonstrable internal pay inequities. Salary adjustment under this provision shall preclude adjustments to compensate or reward employees for long-term or meritorious service.

D. The appointing authority may approve a within range salary adjustment or other incentives to retain employees in positions that are difficult to fill, or because of their unique requirements. Said adjustment may only be granted once during a twenty-six (26) week period.

E. For the purpose of computing earnings and length of service for salary advancement, the time shall start with the Sunday preceding all appointments effective on Monday. Absence from service as a result of vacation, sick leave, jury/witness leave, suspension, nonpaid absence, leave of absence for service in the armed forces, and leaves of absence for study to improve performance of a City job will not interrupt continuous service. Absence from service for any other cause except as set forth above will result in breaking continuity of service.

(1994 C., § 4.36.060; Ord. No. 71968, § 7, 2-11-2025; Ord. No. 71691, § 7, 7-10-2023; Ord. No. 71509, § 8, 6-16-2022; Ord. No. 70053, § 7, 7-16-2015; Ord. No. 69929, § 1, 2-3-2015; Ord. No. 69190, § 7, 7-13-2012.)

4.36.070 Income sources.

Any salary paid to an employee in the City service shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments specifically special services. No employee shall receive remuneration from the City in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which the employee may undertake or volunteer to perform.

Whenever an employee not on an approved paid leave works for a period less than the regularly established number of hours a day, days a week, or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's normal work week and the bi-weekly rate for the employee's position. The payment of a separate salary for actual hours worked from two (2) or more departments, divisions, or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.

(1994 C., § 4.36.070; Ord. No. 71968, § 8, 2-11-2025; Ord. No. 71691, § 8, 7-10-2023; Ord. No. 71509, § 9, 6-16-2022; Ord. No. 70053, § 8, 7-16-2015; Ord. No. 69190, § 8, 7-13-2012.)

4.36.080 Conversion.

All pay schedules in Section 4.36.020 shall continue in effect until the beginning of the bi-weekly pay period starting concurrently with or after the effective date of this chapter, and then the rates will be adjusted as follows:

1. The rates shall be adjusted in accordance with the minimum and maximum bi-weekly rates of pay and within the Matrix.

2. No employee shall be reduced in salary by reason of the adoption of the new pay schedules in this chapter.

3. All pay schedules established in Ordinance Number 71509 shall continue in effect until the beginning of the bi-weekly pay period effective upon passage of this chapter.

4. Based upon the service rating of an employee together with the standards of performance established by the Sheriff shall determine eligibility for an annual one-step within pay range (merit) increase; or at the discretion of the Sheriff of an increase of more than one step by not more than ten (10) percent or to the closest step in the pay range which provides not more than a ten (10) percent increase for exceptional performance of duties. Any such pay increases shall be adjusted by the employee's anniversary date.

The compensation of the Sheriff in a city not within a county may be annually increased by an amount equal to the annual salary adjustment for employees of such a city as approved by the board of alderman of such city and in accordance with RSMo 57.550.

(1994 C., § 4.36.080; Ord. No. 71968, § 9, 2-11-2025; Ord. No. 71691, § 9, 7-10-2023; Ord. No. 71509, § 10, 6-16-2022; Ord. No. 70053, § 9, 7-16-2015; Ord. No. 69190, § 9, 7-13-2012.)

4.36.090 Changes to pay plan.

Whenever the appointing authority finds it necessary to add a new class to the pay plan, the appointing authority shall allocate the class to an appropriate grade and schedule in this chapter, and notify the Board of Aldermen of this action.

Whenever the appointing authority finds it necessary to change the pay schedule of an existing class within the pay plan, the appointing authority shall allocate the class to the appropriate schedule in this chapter, and notify the Board of Aldermen of this action.

Whenever the police department receives an adjustment to pay, the same percentage increase shall be made to the Sheriff's Office pay plan for equivalent rank, and Comptroller shall fund the increase.

(1994 C., § 4.36.090; Ord. No. 71968, § 10, 2-11-2025; Ord. No. 71691, § 10, 7-10-2023; Ord. No. 71509, § 11, 6-16-2022; Ord. No. 70053, § 10, 7-16-2015; Ord. No. 69190, § 10, 7-13-2012.)

4.36.100 Military leave.

The City of St. Louis will follow all applicable state and federal laws on the granting of military leave and reemployment rights. Before military leave without pay is authorized, the employee shall present to the employee's appointing authority evidence of such military service. Upon the expiration of military leave of absence, the employee shall be reinstated to the class of position he/she occupied at the time the leave was granted without breaking continuity of service. Failure of an employee to report for duty within the time pursuant to state or federal law shall be just cause for dismissal. The employee's accumulated leave balance(s) shall be restored to the employee upon his/her return.

(1994 C., § 4.36.100; Ord. No. 71968, § 11, 2-11-2025; Ord. No. 71691, § 11, 7-10-2023; Ord. No. 71509, § 12, 6-16-2022; Ord. No. 70053, § 11, 7-16-2015; Ord. No. 69190, § 11, 7-13-2012.)

4.36.110 Leave of absence and family/medical leave.

Employees may request a leave of absence for any reason under the leave policy, or may be eligible for a "family/medical leave of absence" for certain qualifying reasons under provisions of the federal "Family and Medical Leave Act of 1993" as provided in this chapter.

1. An appointing authority, may grant an employee in a competitive position a general leave of absence with pay for a period not to exceed six (6) months, and an additional general leave of absence without pay for a period not to exceed six (6) additional months thereafter, whenever such leave is considered to be in the best interest of the City service. Such non-paid leaves are granted at the discretion of the appointing authority and may be for any reason including an employee's personal illness when the circumstances do not qualify for family/medical leave, or when eligibility for family/medical leave has been exhausted.

Upon the expiration of such leave of absence, the employee shall be reinstated to the competitive position he or she occupied at the time the leave was granted provided he or she is able to perform the duties of the position. The employee shall be reinstated to the position at the same relative rate in the salary range the employee occupied at the time the leave was initiated. Failure of an employee to report for duty promptly at the expiration of the leave shall be just cause for dismissal. If necessary to the efficient conduct of the business of the City, an employee on leave other than military leave or qualifying family/medical leave may be notified by the appointing authority to return prior to the expiration of such leave. Failure of the employee to return within ten (10) days after receipt of such

notice would terminate his/her leave of absence and be just cause for dismissal, subject to any applicable federal, state or local regulations.

2. The federal "Family and Medical Leave Act of 1993" entitles eligible employees to up to twelve (12) weeks of unpaid leave in any twelve-month period for the birth, adoption or placement of a child, to care for a spouse or an immediate family member with a serious health condition, or when the employee is unable to work because of a serious health condition.

While an employee is on a qualifying family/medical leave of absence, the City of St. Louis will continue to pay the employee's health care premiums, if any, during the leave period. Once the leave is concluded, the employee shall be reinstated to the same or an equivalent job. The appointing authority shall establish additional rules, guidelines and procedures for the effective administration of the "Family/Medical Leave Policy." The policy shall comply with all provisions of the "Family/Medical Leave Act of 1993" and any amendments thereafter.

3. Employees who are granted general leaves of absence and other non-paid leaves of absence, except family/medical leaves of absence, must take all accrued vacation and authorized sick leave at the start of the leave of absence. Employees who are granted a non-paid leave of absence will not accrue vacation or sick leave during the period of non-paid leave. Upon the expiration of such leaves of absence, the employee shall follow the procedures as established in this section and any other applicable regulations and procedures as established by the appointing authority.

4. An appointing authority, may place an employee on investigative leave of absence without pay pending the outcome of criminal charges pending against the employee.

(1994 C., § 4.36.110; Ord. No. 71968, § 13, 2-11-2025; Ord. No. 71691, § 12, 7-10-2023; Ord. No. 71509, § 13, 6-16-2022; Ord. No. 70053, § 12, 7-16-2015; Ord. No. 69190, § 12, 7-13-2012.)

4.36.120 Holidays.

The Sheriff shall grant holiday leave with pay, holiday pay, or compensatory holiday time off in lieu of pay to employees working full-time who are paid a bi-weekly rate on the following days:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Dr. Martin Luther King's Birthday
February 12	Lincoln's Birthday
Third Monday in February	President's Day
May 8	Truman's Birthday
Last Monday in May	Memorial Day
June 19	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
October 8	Columbus Day
November 11	Veterans' Day
Fourth Thursday in November	Thanksgiving Day
December 25	Christmas Day

Employees working full-time and paid a bi-weekly rate whose pay is established in this chapter shall receive leave with pay, pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day or shift. For example, employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday.

When the day of observance of a holiday is changed by state or federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by state or federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When one of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

The Sheriff shall determine the manner of granting holidays. When full-time employees are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked. Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift.

Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have

compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift.

The holiday compensation procedures established by this section shall apply to full-time employees paid a bi-weekly rate. Part-time bi-weekly paid employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work. Employees paid on an hourly or per performance basis shall not be entitled to holiday compensation.

In the event that the holiday schedule established in this section is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly.
(1994 C., § 4.36.120; Ord. No. 71968, § 13, 2-11-2025; Ord. No. 71691, § 13, 7-10-2023; Ord. No. 71509, § 14, 6-16-2022; Ord. No. 70053, § 13, 7-16-2015; Ord. No. 69190, § 13, 7-13-2012.)

4.36.130 Jury and witness leave.

1. Jury leave with pay shall be granted to bi-weekly paid employees working one-half (fifty (50) percent) time or more for such time when such employees are serving as jurors pursuant to order of the St. Louis Circuit Court or Federal District Court in St. Louis. Any bi-weekly paid employee, when so summoned for jury service, shall report such fact within seventy-two (72) hours to his/her appointing authority and display to the appointing authority the summons which the employee has received and shall give the appointing authority in writing the date and the time of such jury service. No bi-weekly paid employee shall receive any compensation from the Jury Commissioner or the Federal District Court system for jury service for days the employee receives compensation from the City. A bi-weekly paid employee may keep the jury stipend for days when the employee receives no compensation from the City (off days, docks, leaves, etc.) Upon being excused from serving as a juror by the Court or the Jury Commissioner, the employee shall report forthwith to his/her appointing authority and shall submit to his/her appointing authority a written statement from the Jury Commissioner certifying that the employee has served as a juror and the time and date so served. The appointing authority shall, upon receipt of the statement of jury service, credit the employee with paid jury leave for such service.

2. Leave with pay shall be granted to bi-weekly paid employees for such time when the employee's presence is required by the prosecutor as a part of a grand jury procedure, a trial in prosecuting accused criminals (or for jury service in Federal Court). Any bi-weekly paid employee, when so subpoenaed as a prosecution witness or whose presence is required as a part of a grand jury inquiry, shall report such fact within seventy-two (72) hours to his/her appointing authority and shall give the appointing authority in writing the date and time his/her presence is required for such criminal prosecution. Each appointing authority shall establish controls to assure that any paid leave is actually required by the prosecuting authority. An appointing authority may require an employee to furnish satisfactory evidence of being required to be off the job and that all time off was in connection with the prosecution of the case. This procedure shall apply for employee participation in criminal prosecution in State or Federal Courts.
(1994 C., § 4.36.130; Ord. No. 71968, § 14, 2-11-2025; Ord. No. 71691, § 14, 7-10-2023; Ord. No. 71509, § 15, 6-16-2022; Ord. No. 70053, § 14, 7-16-2015; Ord. No. 69190, § 14, 7-13-2012.)

4.36.140 Compensation for Sheriff's Attorney.

The "Sheriff's Attorney" as provided under RSMo 57.540, shall receive in addition to the compensation for his services as provided thereunder the sum of not less than three thousand dollars ($3,000.00) per annum in bi-weekly installments. In no event shall the total of said salary exceed twenty-five thousand dollars ($25,000.00).
(1994 C., § 4.36.140; Ord. No. 71968, § 15, 2-11-2025; Ord. No. 71691, § 15, 7-10-2023; Ord. No. 71509, § 16, 6-16-2022; Ord. No. 70053, § 15, 7-16-2015; Ord. No. 69190, § 15, 7-13-2012.)

Chapter 4.38

CIRCUIT COURT PAROLE OFFICE EMPLOYEES

Editor's Note:

Text omitted as obsolete.

Chapter 4.40

HOUSE OF DETENTION EMPLOYEES

Sections:

4.40.010 Director and Assistant Director.
4.40.020 Doctor and nurse.

4.40.030 Salaries for directors, doctor and nurse.
4.40.040 Other employees—Appointment.
4.40.050 Other employees—Number.
4.40.060 Other employees—Salaries.
4.40.070 Vacations.

4.40.010 Director and Assistant Director.

The Judge of the Juvenile Court is authorized to appoint a Director and an Assistant Director for the House of Detention of the City. (1960 C., § 56.010; 1994 C., § 4.40.010; Ord. No. 48001, § 1, 1956.)

4.40.020 Doctor and nurse.

The Director of the House of Detention is authorized to employ, subject to the approval of the Judge of the Juvenile Court, a doctor and a nurse. (1960 C., § 56.020; 1994 C., § 4.40.020; Ord. No. 48001, § 2, 1956.)

4.40.030 Salaries for directors, doctor and nurse.

The Director shall receive a salary of three hundred fifty dollars per month; the Assistant Director shall receive a salary of two hundred fifty dollars per month; the doctor shall be compensated for his part-time services at not more than two hundred fifty dollars per month; the nurse shall be compensated for her part-time services at not more than two hundred dollars per month. (1960 C., § 56.030; 1994 C., § 4.40.030; Ord. No. 48001, § 3, 1956.)

4.40.040 Other employees—Appointment.

The Superintendent of the House of Detention is authorized to employ, subject to the approval of the juvenile court, attendants, watchmen, and other employees. (1960 C., § 56.040; 1994 C., § 4.40.040; Ord. No. 47796, § 2, 1956.)

4.40.050 Other employees—Number.

Not more than eight attendants, nine watchmen, one cook, and one custodian worker shall constitute the total number of employees of the House of Detention, to be employed as set forth in Section 4.40.040. (1960 C., § 56.050; 1994 C., § 4.40.050; Ord. No. 47796, § 3, 1956.)

4.40.060 Other employees—Salaries.

All attendants, watchmen, and cooks employed at the House of Detention shall receive a salary of two hundred forty-six dollars per month. Any custodian worker employed at the House of Detention shall receive a salary of two hundred thirty-eight dollars per month. (1960 C., § 56.060; 1994 C., § 4.40.060; Ord. No. 47796, § 4, 1956.)

4.40.070 Vacations.

Vacation leave with full pay after six months' full-time service shall be granted to employees of the house of detention at the rate of one and one-half working days for each full calendar month of service, but shall not accrue to an employee's credit beyond a maximum of thirty-six working days. (1960 C., § 56.070; 1994 C., § 4.40.070; Ord. No. 48001, § 4, 1956; Ord. No. 47796, § 5, 1956.)

Chapter 4.42

CORONER AND MORGUE EMPLOYEES

Editor's Note:

Text omitted as obsolete. See RSMo 58.760. See Ch. 4.44 *post*.

Chapter 4.44

COLLECTION DIVISION EMPLOYEES

Editor's Note:

Ord. No. 69191, adopted July 13, 2012, repealed Ch. 4.44 and enacted a new chapter as set out herein. The former Ch. 4.44, §§ 4.44.010—4.44.070, pertained to similar subject matter and derived from Ord. No. 68705, adopted July 9, 2010.

Prior history: Ords. 45114, 46128, 48512, 52032, 57161, 57192, 57331, 57663, 58075, 58696, 59157, 59943, 61278, 62002, 62341, 62664, 63160, 63710, 64310, 64945, 65520, 66397, 67328, 68541 and 68705; 1948 C. Ch. 23 § 92; 1960 C. § 127.040

RSMo:

RSMo 82.610 (2016) Number of deputies, assistants, etc.

RSMo 82.630 (2016) Appointments of additional clerical help.

Sections:

4.44.010 Grades.
4.44.020 General pay schedule.
4.44.030 Funding for salaries.
4.44.040 Increases.
4.44.050 Salary adjustments.
4.44.060 New classifications.
4.44.070 Holidays.

4.44.010 Grades.

Pursuant to RSMo 82.610, the Collector of Revenue is hereby authorized to appoint and employ the following officers and employees with bi-weekly rates,

in accordance with the following classification plan, to a grade with rates established in Section 4.44.020 of this chapter.

Title	Grade
Accounting Clerk	11G
Accounting Manager	15M
Accounting Supervisor	14G
Administrative Assistant	13G
Assistant Collector	17M
Assistant Collector, Finance	18M
Cashier Manager	15M
Collections Specialist I	12G
Collections Specialist II	13G
Compliance Auditor	16M
Compliance Clerk	8G
Compliance Officer	12G
Court Clerk	11G
Custodian	8G
Data Processing Clerk	9G
Deputy Collector/Chief of Staff	23M
Human Resources Manager	18M
Information Systems Coordinator	13G
Information Systems Support Manager	20M
Mail Clerk	8G
Office Coordinator	13G
Paralegal	15M
Payroll Clerk	10G
Revenue Clerk I	8G
Revenue Clerk II	9G
Revenue Clerk III	10G
Revenue Clerk IV	11G
Revenue Clerk V	12G
Revenue Manager	15M
Revenue Manager II	16M
Supervisor I	12G
Supervisor II	13G
Supervisor III	14G
Supervisor, Cashier	13G
Supervisor, Mail Processing	12G
Supervisor, Taxpayer Services	13G
Supervisor Tax Revenue Auditors	15M
System Analyst Senior	17M
System Development Specialist	15M
Tax Revenue Auditor	14G
Taxpayer Cashier	9G
Taxpayer Customer Service Representative I	13G
Taxpayer Customer Service Representative II	14G
Taxpayer Specialist	9G
Technology Manager	17M

(1994 C., § 4.44.010; Ord. No. 71966, § 2, 2-11-2025; Ord. No. 71685, § 2, 6-28-2023; Ord. No. 71508, § 2, 6-16-2022; Ord. No. 70020, § 2, 6-29-2015; Ord. No. 69191, § 2, 7-13-2012.)

4.44.020 General pay schedule.

(1) There is hereby adopted as the compensations schedule for all pay grades which are denoted by the suffix "G" and "M" in Section 4.44.010 of this chapter, the following ranges of salary beginning with the bi-weekly pay period concurrent with the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
8	1,360	2,124
9	1,374	2,772
10	1,388	3,030
11	1,416	3,219
12	1,518	3,436
13	1,548	3,473
14	1,621	3,983
15	1,857	4,392
16	2,131	4,781
17	2,445	5,437
18	2,805	6,492
19	3,221	6,501
20	3,699	7,103
21	3,991	9,613
22	4,306	9,973
23	4,647	11,083

(2) The following bi-weekly pay schedule for all pay grades denoted with the suffix "G," "P," or "M" shall become effective beginning with the bi-weekly pay period starting the first pay period following approval by the Mayor.

Bi-Weekly Range of Pay in Whole Dollars

Grade Step	5	6	7	8	9	10	11	12	13
1								1416	1430
2								1430	1459
3								1459	1474
4								1474	1503
5							1402	1503	1518
6							1416	1518	1548
7							1444	1548	1563
8							1458	1563	1594
9							1487	1594	1610
10						1388	1517	1610	1642
11						1402	1532	1642	1658
12						1416	1547	1658	1691
13						1444	1578	1691	1708
14						1458	1610	1708	1742
15					1374	1487	1626	1742	1759
16					1388	1502	1659	1759	1794
17					1416	1517	1676	1794	1812
18					1444	1547	1710	1812	1848
19					1458	1562	1727	1848	1866
20				1360	1502	1578	1762	1866	1903
21				1374	1517	1610	1780	1903	1922
22				1401	1547	1626	1816	1922	1960
23				1415	1578	1659	1852	1960	1980
24				1443	1594	1676	1871	1980	2020
25				1461	1626	1693	1908	2020	2040
26				1506	1659	1727	1927	2040	2081
27				1521	1676	1779	1966	2081	2101
28				1536	1726	1832	2005	2143	2164
29				1582	1778	1944	2065	2207	2229
30				1629	1831	2002	2127	2273	2296
31				1678	1886	2062	2191	2341	2365
32				1728	1943	2124	2257	2411	2436
33				1780	2001	2188	2325	2483	2509
34				1833	2061	2254	2395	2557	2584
35				1627	2123	2322	2467	2634	2662
36				1676	2187	2392	2541	2713	2742
37				1726	2253	2464	2617	2794	2824

Grade Step	5	6	7	8	9	10	11	12	13
38				1778	2321	2538	2696	2878	2909
39				1831	2391	2614	2777	2964	2996
40				1886	2463	2692	2860	3053	3086
41				1944	2537	2773	2946	3145	3179
42				2002	2613	2856	3034	3239	3274
43				2062	2691	2942	3125	3336	3372
44				2124	2772	3030	3219	3436	3473

Grade Step	14	15	16	17	18	19	20	21	22	23
1	1621	1857	2131	2445	2805	3321	3698	3991	4348	4647
2	1637	1876	2152	2494	2861	3387	3771	4071	4391	4740
3	1670	1914	2174	2518	2889	3421	3808	4112	4479	4787
4	1687	1933	2239	2568	2947	3489	3884	4194	4524	4883
5	1721	1972	2284	2593	2976	3524	3922	4236	4614	4932
6	1738	1992	2306	2644	3036	3594	4000	4321	4660	5031
7	1773	2032	2329	2670	3066	3629	4040	4364	4753	5081
8	1791	2052	2376	2723	3127	3702	4121	4451	4801	5183
9	1827	2093	2400	2750	3158	3739	4162	4496	4897	5287
10	1845	2114	2448	2805	3221	3813	4245	4586	4946	5340
11	1882	2156	2472	2833	3253	3851	4287	4632	5045	5447
12	1901	2178	2521	2890	3318	3928	4373	4725	5095	5501
13	1939	2222	2546	2918	3351	4006	4416	4772	5197	5611
14	1958	2244	2597	2976	3418	4046	4504	4867	5249	5667
15	1997	2289	2623	3006	3452	4127	4549	4916	5354	5780
16	2017	2312	2675	3066	3521	4168	4640	5014	5408	5838
17	2057	2358	2701	3096	3556	4251	4686	5064	5516	5955
18	2078	2382	2755	3158	3627	4294	4780	5165	5571	6015
19	2120	2430	2782	3189	3663	4380	4828	5217	5682	6135
20	2141	2454	2837	3253	3700	4423	4925	5321	5739	6196
21	2184	2503	2863	3285	3737	4511	4974	5374	5854	6320
22	2206	2528	2920	3318	3812	4556	5073	5481	5913	6383
23	2250	2579	2949	3384	3858	4647	5123	5536	6031	6511
24	2341	2605	3008	3452	3927	4693	5225	5647	6091	6576
25	2411	2657	3038	3487	3966	4787	5277	5816	6213	6708
26	2483	2737	3061	3557	4045	4835	5386	5990	6275	6909
27	2557	2819	3099	3593	4166	4931	5440	6170	6401	7116
28	2634	2904	3130	3665	4291	4980	5549	6355	6593	7329
29	2713	2991	3193	3702	4420	5080	5604	6546	6791	7549
30	2794	3081	3353	3813	4553	5131	5716	6742	6995	7775

Grade Step	14	15	16	17	18	19	20	21	22	23
31	2878	3173	3454	3927	4690	5234	5773	6944	7205	8008
32	2964	3268	3558	4045	4831	5286	5888	7152	7421	8248
33	3053	3366	3665	4166	4976	5391	5947	7367	7644	8495
34	3145	3467	3775	4291	5125	5445	6066	7588	7873	8750
35	3239	3571	3888	4420	5279	5553	6127	7816	8109	9013
36	3336	3678	4005	4553	5437	5608	6249	8050	8352	9283
37	3437	3788	4125	4690	5600	5720	6311	8292	8603	9561
38	3530	3902	4249	4831	5768	5777	6437	8541	8861	9848
39	3645	4019	4376	4976	5941	5950	6501	8797	9127	10143
40	3754	4140	4507	5125	6119	6128	6696	9061	9401	10447
41	3867	4264	4642	5279	6303	6312	6897	9333	9683	10760
42	3983	4392	4781	5437	6492	6501	7103	9613	9973	11083

(1994 C., § 4.44.020; Ord. No. 71966, § 3, 2-11-2025; Ord. No. 71685, § 3, 6-28-2023; Ord. No. 71508, § 3, 6-16-2022; Ord. No. 70020, § 3, 6-29-2015; Ord. No. 69191, § 3, 7-13-2012.)

4.44.030 Funding for salaries.

These salaries shall be paid out of fees collected, deducted and retained by the Collector of Revenue as provided by RSMo 82.650 and 82.670.
(1994 C., § 4.44.030; Ord. No. 71966, § 4, 2-11-2025; Ord. No. 71685, § 4, 6-28-2023; Ord. No. 71508, § 4, 6-16-2022; Ord. No. 70020, § 4, 6-29-2015; Ord. No. 69191, § 4, 7-13-2012.)

4.44.040 Increases.

(a) All pay schedules established in Ordinances Number 71508 shall continue in effect until the beginning of the bi-weekly pay period effective upon passage of this chapter.

(1) Based upon the service rating of an employee together with the standards of performance established by the Collector of Revenue shall determine eligibility for a two (2) percent increase or at the discretion of the Collector of Revenue up to a ten (10) percent increase (merit) for exceptional performance of duties.

(2) Effective upon approval of the Mayor all full-time employees will receive a three (3) percent across the board increase in pay. All full-time employees who meet the eligibility requirements for FML approval will be entitled to six (6) weeks of paid family medical leave. Upon passage of this chapter an emergency clause will be in effect.

The compensation of the collector of revenue in a city not within a county may be annually increased by an amount equal to the annual salary adjustment for employees of such a city as approved by the board of aldermen of such city as governed by RSMo 82.599.1
(1994 C., § 4.44.040; Ord. No. 71966, § 5, 2-11-2025; Ord. No. 71685, § 5, 6-28-2023; Ord. No. 71508, § 5, 6-16-2022; Ord. No. 70020, § 5, 6-29-2015; Ord. No. 69191, § 5, 7-13-2012.)

4.44.050 Salary adjustments.

(a) An appointing authority may evaluate the performance of an employee whose salary is established in Section 4.44.020(a) of this chapter for the purpose of a salary adjustment.

(1) Exceptional performance of duties: The Collector of Revenue may increase the salary of an employee who demonstrates exceptional performance of duties after serving twenty-six (26) weeks of employment at the same rate in the salary range by not more than ten (10) percent or to the closest step in the pay range which provides not more than a ten (10) percent increase; this may be in addition to any merit increase received.

(2) Substandard performance of duties: The Collector of Revenue may reduce the salary of an employee whose level of performance or assigned duties is significantly diminished and no longer warrants payment at the current rate within the range as provided in Section 4.44.020(a). The granting of any such increase or decrease in salary shall be made at the beginning of a payroll period.

(b) An appointing authority may approve a within-range salary adjustment in any whole dollar increment up to ten (10) percent of an employee's bi-weekly base.

(c) The pay of any employee may be decreased as a disciplinary action at the discretion of the Collector of Revenue lower rate. Any such decrease shall be made in accordance with established disciplinary procedures. The decrease shall not be greater than fifteen (15) percent of the current salary range. The decrease may be below the minimum of the pay range for the class. At the discretion of the Collector of Revenue a determination may be made for a specific number of bi-weekly periods or for an undetermined time.
(1994 C., § 4.44.050; Ord. No. 71966, § 6, 2-11-2025; Ord. No. 71685, § 6, 6-28-2023; Ord. No. 71508, § 6, 6-16-2022; Ord. No. 70020, § 6, 6-29-2015; Ord. No. 69191, § 6, 7-13-2012.)

4.44.060 New classifications.

Whenever the Collector of Revenue finds it necessary to add a new class or reallocate the grade of a class of position in the classification plan, the Collector shall allocate or reallocate the class to an appropriate grade or add or amend any section this chapter and notify the Board of Aldermen of his action.
(1994 C., § 4.44.060; Ord. No. 71966, § 7, 2-11-2025; Ord. No. 71685, § 7, 6-28-2023; Ord. No. 71508, § 7, 6-16-2022; Ord. No. 70020, § 7, 6-29-2015; Ord. No. 69191, § 7, 7-13-2012.)

4.44.070 Holidays.

The Collector of Revenue shall grant holiday leave with pay, holiday pay, or compensatory holiday time off in lieu of pay to employees working full-time who are paid a bi-weekly rate on the following days:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Rev. Martin Luther King Jr. Day

Date	Holiday
February 20	President's Day
Last Monday in May	Memorial Day
June 19	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
November 12	Veterans' Day
Fourth Thursday in November	Thanksgiving Day
Fourth Friday in November	Day after Thanksgiving Day
December 25	Christmas Day

The Collector of Revenue shall not grant holiday leave with pay, holiday pay, or compensatory holiday time off except as provided in this section.

Employees working full-time and paid a bi-weekly rate whose pay is established in this chapter shall receive leave with pay, pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day or shift. For example, employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday.

When the day of observance of a holiday is changed by state or federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by state or federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When one (1) of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one (1) of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

The Collector of Revenue shall determine the manner of granting holidays. When full-time employees are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked. Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift.

Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift.

If an employee is docked from the payroll for one (1) hour or more on the full scheduled workday preceding a holiday, the full scheduled workday following a holiday or on a scheduled holiday, the employee shall not be compensated for the holiday at the discretion of the Collector of Revenue.

The holiday compensation procedures established by this section shall apply to full-time employees paid a bi-weekly rate. Part-time bi-weekly paid employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work.

Employees paid on an hourly or per performance basis shall not be entitled to holiday compensation.

In the event that the holiday schedule established in this section is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly.
(1994 C., § 4.44.070; Ord. No. 71966, § 8, 2-11-2025; Ord. No. 71685, § 8, 6-28-2023; Ord. No. 71508, § 8, 6-16-2022; Ord. No. 70020, § 8, 6-29-2015; Ord. No. 69191, § 8, 7-13-2012.)

Chapter 4.46

MUNICIPAL TAX SECTION EMPLOYEES

Sections:

4.46.010 Grades.
4.46.020 Pay scale—Beginning June 17, 1990.
4.46.030 Pay scale—Beginning December 17, 1990.
4.46.040 Management pay schedule—Beginning June 17, 1990.
4.46.050 Management pay schedule—Beginning December 17, 1990.
4.46.060 Appointments.
4.46.070 Starting salary.
4.46.080 Promotion, demotion, reallocation and transfer.
4.46.090 Salary adjustment.
4.46.100 Income sources.
4.46.110 Conversion.

4.46.010 Grades.

The following positions of the Municipal Tax Section, whose duties shall be those indicated by their respective titles and codes are hereby allocated as listed below and adopted as the classification plan for the Municipal Tax Section:

Class Title	Code	Grade
Account Clerk I	1141	8G
Administrative Officer I	1621	15G
Administrative Officer III	1205	19G
Administrative Officer IV	1203	26M
Auditor I	1471	16G
Clerk I		
Clerk II		
Clerk IV	1115	13G
Data Entry Operator II	1312	8G
Data Entry Operator I	1311	6G
Field Inspection Manager	3916	18G
Field Service Representative I	1311	6G
Field Service Representative II	1312	8G

(1994 C., § 4.46.010; Ord. No. 62005, § 1(part), 1990.)

4.46.020 Pay scale—Beginning June 17, 1990.

There is hereby adopted as the official pay schedule for all classification grade of positions in the office of the Municipal Tax Section which are denoted by the suffix "G" of this chapter beginning with the bi-weekly pay period starting June 17, 1990 and extending through the bi-weekly pay period ending December 15, 1990.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
6G	526	711
8G	580	783
13G	742	1001
15G	817	1103
16G	858	1158
18G	946	1277
19G	993	1340

(1994 C., § 4.46.020; Ord. No. 62005, § 2(a)(1), 1990.)

4.46.030 Pay scale—Beginning December 17, 1990.

There is hereby adopted as the official pay schedule for all classification grades of positions, which are denoted by the suffix "G" of this chapter beginning with the bi-weekly pay period starting December 17, 1990 and extending through the bi-weekly pay period ending June 15, 1991.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Starting	Maximum
6G	537	725
8G	592	799
13G	757	1021
15G	833	1125
16G	875	1181
18G	965	1303
19G	1013	1367

(1994 C., § 4.46.030; Ord. No. 62005, § 2(a)(2), 1990.)

4.46.040 Management pay schedule—Beginning June 17, 1990.

There is hereby adopted as the official pay schedule for all classification grade of positions in the office of the Municipal Tax Section which are denoted by the Suffix "M" of this chapter beginning with the bi-weekly pay period starting June 17, 1990 and extending through the bi-weekly pay period ending December 15, 1990.

Bi-Weekly Scales of Pay in Dollars

Grade	Starting	Maximum
26M	1397	2096

(1994 C., § 4.46.040; Ord. No. 62005, § 2(b)(1), 1990.)

4.46.050 Management pay schedule—Beginning December 17, 1990.

There is hereby adopted as the official pay schedule for all classification of positions, which are denoted by the suffix "M" of this chapter beginning with the bi-weekly pay period starting December 17, 1990 and extending through the bi-weekly pay period ending June 15, 1991.

Bi-Weekly Scales of Pay in Dollars

Grade	Starting	Maximum
26M	1425	2138

(1994 C., § 4.46.050; Ord. No. 62005, § 2(b)(2), 1990.)

4.46.060 Appointments.

The appointing authority is authorized to appoint and employ auditors, field service representatives, administrative officers, custodians and accountants in addition to those enumerated in RSMo 82.390; however, the salaries shall not exceed the amount as set forth in this chapter. (1994 C., § 4.46.060; Ord. No. 62005, § 3, 1990.)

4.46.070 Starting salary.

A. The minimum rate of pay for a position shall be paid upon original appointment to the class, unless the appointing authority finds that it is impossible to recruit employees with adequate qualifications at the minimum rate.

B. If an advanced starting salary is necessary, the appointing authority may establish a recruitment rate for a single position or all positions in a class and authorized employment at a figure above the minimum but within the regular range of salary established for the class. (1994 C., § 4.46.070; Ord. No. 62005, § 4, 1990.)

4.46.080 Promotion, demotion, reallocation and transfer.

An employee who is transferred, promoted, demoted, or whose position is reallocated after the effective date of the ordinance codified in this chapter, shall have his or her rate of pay for the new position determined as follows:

A. *Promotion.* This shall be defined as a change of an employee from a position of one class to a position of class with a higher pay grade.

1. When an employee is promoted to a position in the General or Management Schedule which is only one grade higher, the employee's salary shall be set at a rate which is five percent (5%) higher than the rate received immediately prior to promotion. If the position to which the employee is promoted is two (2) or more grades higher than the original position, the employee's salary shall be set at a rate which is ten percent (10%) higher than the rate received immediately prior to position. The appointing authority may approve up to a fifteen percent (15%) salary adjustment upon promotion when such action is needed to attract experienced, qualified candidates for a position.

2. Such salary determination shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position.

B. *Demotion.* This shall be defined as a change of an employee to a position of one class to a position of another class which has a lower pay grade.

1. If an employee accepts a voluntary demotion, his or her rate of pay shall be reduced to a rate within the range for the new position which is five percent (5%) lower than the rate received immediately prior to demotion. The appointing authority may approve up to a ten percent (10%) salary decrease upon demotion. However, no employee shall be paid less than the minimum nor more than the maximum rate for the new class of position.

C. *Reallocation.*

1. The salary of an employee which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his or her position has been allocated or may be reallocated shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he or she remains in the class of position, except as otherwise provided by this chapter.

2. If the employee's position is reallocated to a class in a lower pay grade and the rate of pay for the previous position is within the salary range of the new position, his or her salary shall remain unchanged.

3. The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of Section 4.46.090 relating to salary advancement on promotion.

D. *Transfer.* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, regardless of pay schedule, shall remain unchanged provided that no employee shall be paid less than the minimum nor more than the maximum rate for the new class of position. (1994 C., § 4.46.080; Ord. No. 62005, § 5, 1990.)

Editor's Note:

Ordinance 62005 was passed July 15, 1990.

4.46.090 Salary adjustment.

Salary adjustments for all employees shall be based on considerations of merit in the performance of duties and success in fulfilling predetermined goals and objectives as herein provided:

A. Positions for which salary is established in the General Schedule.

1. Eligibility for within-range merit increases to be effective at the beginning of the first bi-weekly pay period which is paid in each new City fiscal year, shall be determined by the appointing authority. The appointing authority shall grant within-range salary adjustments in any whole dollar increment up to ten percent (10%) of the employee's bi-weekly base salary.

B. The appointing authority may establish additional guidelines for all within-range salary adjustments for classes in the General Schedule to ensure the effective utilization of salary ranges to reward meritorious service.

C. Positions for which salary is established in the Management Schedule.

1. Advancement in the salary range shall be made solely on the basis of demonstrated successful performance of the duties of the position. The increase shall be based on the degree to which the employee's actual job performance materially contributes to the effective management of and increases the total work product of, the organization in a clearly demonstrated manner, either from a quantitative or qualitative standpoint.

2. A decrease in the salary range for poor performance of the duties of the position or for job performance which does not warrant continued pay at an advanced rate in the salary range shall be made in accordance with standards established by the appointing authority.

D. Merit increases shall be fairly distributed in approximate proportion to the personal service budget accorded the various schedules of employees in the agency.

E. The appointing authority may evaluate the performance of an employee whose salary is established in this chapter for the purpose of a salary adjustment only at intervals as described above except in the case of:

1. Exceptional Performance of Duties. The appointing authority of an employee who demonstrates exceptional performance of duties or outstanding qualifications may advance the employee by not more than ten percent (10%) after twenty-six (26) weeks of employment at a rate in the salary range.

2. Substandard Performance of Duties. The appointing authority of an employee whose level of performance is significantly diminished and no longer warrants payment at the current rate within the range may be decreased to a lower rate in the salary range.

F. The pay of any employee may be decreased as a disciplinary action by an appointing authority to a lower rate or step within a salary. The decrease shall not be greater than fifteen percent (15%) of the employee's current salary rate. In no case shall the decrease be below the minimum of the pay range for the class. The appointing authority may determine that the pay decrease shall be effective for a specific number of bi-weekly pay periods; providing, however, that such decrease shall not be effective for more than twenty-six (26) weeks.

G. For the purpose of computing earnings and length of service for salary advancement, the time shall start with the Sunday preceding all appointments effective on Monday. Absence from service as a result of vacation, sick leave, jury/witness leave, suspensions, non-paid absence, leave of absence for service in the armed forces, and leaves of absence for study to improve performance of City job will not interrupt continuous service. Absence from service for any other cause except as set forth above will result in breaking continuity of service. (1994 C., § 4.46.090; Ord. No. 62005, § 6, 1990.)

4.46.100 Income sources.

Any salary paid to an employee shall represent the total remuneration for the employee, excepting reimbursements for official travel and other payments specifically authorized by ordinance. No employee shall receive remuneration from the City in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which employee may undertake or volunteer to perform.

Whenever an employee not on an approved paid leave works for a period less than the regularly established number of hours a day, days a week or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's normal work week and the bi-weekly rate for the employee's position. The payment of a separate salary for actual hours worked from two or more departments, divisions, or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class. (1994 C., § 4.46.100; Ord. No. 62005, § 7, 1990.)

4.46.110 Conversion.

A. All pay schedules in Ordinance 61282 shall continue in effect until the beginning of the bi-weekly pay period starting June 17, 1990, at which time the rates to be paid to employees in positions of any class for which a rate is established or changed in Sections 4.46.020 and 4.46.030 or 4.46.040 and 4.46.050 shall become effective and be adjusted as follows:

The salary of each employee whose pay range is established in Sections 4.46.020 and 4.46.040 shall be increased by two percent (2%) or to the minimum of the new range whichever is greater.

B. The pay schedules in Sections 4.46.020 and 4.46.040 shall continue in effect until the bi-weekly pay period starting December 15, 1990, at which time the rates to be paid to employees in positions of any class

for which a rate is established or changed in Section 4.46.030 and 4.46.050 shall become effective and be adjusted as follows:

The salary of each employee whose pay range is established in Sections 4.46.030 and 4.46.050 shall be increased by a factor of two percent (2%) to the nearest whole dollar, as determined by the appointing authority.

C. This provision shall not apply to employees whose rate is deemed to be above the maximum of the new range as a result of demotion or reallocation. No employee shall be compensated at a rate above the maximum of the new salary range except as provided in Subsection E of this section.

D. No employee shall be reduced in salary by reason of the adoption of the new pay schedules in this chapter.

E. The appointing authority may establish a special conversion procedure for a class of position in the event that the appointing authority determines that a serious inequity would be created by the application of the conversion procedures established in this section. (1994 C., § 4.46.110; Ord. No. 62005, § 8, 1990.)

Chapter 4.48

CIRCUIT ATTORNEY OFFICE EMPLOYEES

Editor's Note:

Ord. No. 70962, adopted January 18, 2019, repealed Ordinance 70056 relating to the Office of the Circuit Attorney; Ord. No. 70450, adopted February 8, 2018, repealed Ordinance 70056 relating to the Office of the Circuit Attorney; setting minimum and maximum salaries for such grades by repealing Section Two and replacing said Section; Ord. No. 69194, adopted July 13, 2012, repealed Ch. 4.48 and enacted a new chapter as set out herein. The former Ch. 4.48, §§ 4.48.010—4.48.060, pertained to similar subject matter and derived from Ord. No. 68743, adopted Sept. 20, 2010.

Prior ordinance history: Ords. 58384, 59159, 59940, 60519, 61284, 62004, 62334, 62667, 62991, 63159, 63709, 64307, 64941, 65523, 68542, 68743

Sections:

4.48.010 List of classes.

4.48.020 Official pay schedule for classification grades.

4.48.030 Appointment procedure.

4.48.040 Bi-weekly salary payment.

4.48.050 Annual rate of employee compensation.

4.48.060 Overtime wages.

4.48.010 List of classes.

Beginning with the effective date of this chapter, the following positions of the Office of the Circuit Attorney with bi-weekly rates are hereby allocated as listed below in accordance with the classification plan by the Director of Personnel to a grade and overtime code in the following section with rates established in Section 4.48.010 of this chapter in accordance with Section 3(a) and Section 9(e) of Article XVIII of the City Charter.

Title	Code	Grade
First Assistant Circuit Attorney	A601	21M
Chief Trial Assistant	A602	20M
Chief Warrant Officer	A603	20M
Chief Misdemeanor Officer	A604	20M
Chief of Staff	A737	20M
Special Assistant Circuit Attorney I	A605	15P
Special Assistant Circuit Attorney II	A606	17P
Special Assistant Circuit Attorney III	A613	18P
Attorney I	2361	15P
Attorney II	2362	17P
Attorney III	2363	18P
Attorney IV	2367	20M
Attorney Manager	2364	20M
Administrative Assistant	A622	14G
Administrative Secretary	A614	14G
Chief Clerk	A617	15P
Chief Investigator	A630	19M
Chief Training Officer	A611	20M
Chief Data & Process Analyst	A360	15G
Clerk I	A112	08G
Clerk II	A113	09G
Clerk III	A114	11G
Community Engagement Officer	A646	18P
Computer Operations Supervisor	A327	16P
Computer Operator I	A323	12G
Computer Operator II	A324	13G
Deputy Warrant Officer	A612	19M
Diversion Specialist	A647	14G
Human Resources Manager		18M
Investigator IA	A633	11G
Investigator I	A631	14G
Investigator II	A632	16P
Legal Secretary	A134	12G
Paralegal	2365	12G
Public Information Officer	A1614	18P
Secretary I	A131	10G
Secretary II	A132	11G
Secretary III	A133	12G
Victim Services Counselor I	A642	13G
Victim Services Supervisor	A644	15P

Title	Code	Grade
Victim/Witness Specialist	A641	14G

(1994 C., § 4.48.010; Ord. No. 71969, § 2, 2-11-2025; Ord. No. 71905, § 2, 10-17-2024; Ord. No. 71693, § 2, 7-10-2023; Ord. No. 71515, § 2, 6-16-2022; Ord. No. 70962, § 2, 1-18-2019; Ord. No. 70450, § 2, 2-8-2017; Ord. No. 69194, § 2, 7-13-2012.)

4.48.020 Official Pay Schedule for Classification Grades.

The official pay schedules hereby adopted have been determined to constitute fair and equitable rates of pay. Due consideration has been given to both the employees and the taxpayers in adopting the official pay schedules. In setting these official pay schedules, the principle of like pay for like work, and suitable differences in pay for differences in work, has been duly observed.

General and Management Pay Schedule: The following bi-weekly pay schedule for all pay grades denoted with the suffix "G" or "M" shall become effective with the start of the first bi-weekly pay period following the effective dates of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
8	1006	1540
9	1101	1685
10	1196	1831
11	1304	1995
12	1421	2175
13	1572	2406
14	1807	2767
15	2080	3183
16	2391	3659
17	2751	4211
18	3163	4841
19	3471	5314
20	3992	6110
21	4312	6599
22	4378	7126
23	4791	7333

(1994 C., § 4.48.020; Ord. No. 71969, § 3, 2-11-2025; Ord. No. 71905, § 3, 10-17-2024; Ord. No. 71693, § 3, 7-10-2023; Ord. No. 71515, § 3, 6-16-2022; Ord. No. 70962, § 2, 1-18-2019; Ord. No. 70450, § 2, 2-8-2017; Ord. No. 70056, § 2, 7-16-2015; Ord. No. 69194, § 2, 7-13-2012.)

4.48.030 Appointment procedure.

The Circuit Attorney, in making appointments to the positions authorized by RSMo 56.540, shall make said appointments within the classes and grades set out in Section 4.48.010 of this chapter, and to an amount of pay within a grade; provided further that the Circuit Attorney may, in their sole discretion, change the classification, grade and amount paid to a person appointed as she determines to be required. The Circuit Attorney may establish probationary rates of pay for classes of positions established in this chapter. Such probationary rates may be less than the rate paid to a regular employee. Notwithstanding any other provision in this chapter, the Circuit Attorney is authorized to extend the maximum pay ranges by up to ten (10) percent for purposes of compensating positions which the Circuit Attorney is able to demonstrate are extremely hard to fill.

(1994 C., § 4.48.030; Ord. No. 71969, § 4, 2-11-2025; Ord. No. 71905, § 4, 10-17-2024; Ord. No. 71693, § 4, 7-10-2023; Ord. No. 71515, § 4, 6-16-2022; Ord. No. 70962, § 3, 1-18-2019; Ord. No. 70450, § 3, 2-8-2017; Ord. No. 70056, § 3, 7-16-2015; Ord. No. 69194, § 3, 7-13-2012.)

4.48.040 Bi-weekly salary payment.

The salary for grades of positions shall be paid bi-weekly.

(1994 C., § 4.48.040; Ord. No. 71969, § 5, 2-11-2025; Ord. No. 71905, § 5, 10-17-2024; Ord. No. 71693, § 5, 7-10-2023; Ord. No. 71515, § 5, 6-16-2022; Ord. No. 70962, § 4, 1-18-2019; Ord. No. 70450, § 4, 2-8-2017; Ord. No. 70056, § 4, 7-16-2015; Ord. No. 69194, § 4, 7-13-2012.)

4.48.050 Annual rate of employee compensation.

The annual rate of employee compensation shall be twenty-six (26) times the bi-weekly scale of pay for the grade applicable to the employee's position. No employee shall be paid at a rate lower than the minimum or higher than the maximum of the salary range established for the grade to which his/her class has been allocated. Nothing in this section shall be construed as preventing the Circuit Attorney from paying less than the maximum provided in this chapter.

(1994 C., § 4.48.050; Ord. No. 71969, § 6, 2-11-2025; Ord. No. 71905, § 6, 10-17-2024; Ord. No. 71693, § 6,

7-10-2023; Ord. No. 71515, § 6, 6-16-2022; Ord. No. 70962, § 5, 1-18-2019; Ord. No. 70450, § 5, 2-8-2017; Ord. No. 70056, § 5, 7-16-2015; Ord. No. 69194, § 5, 7-13-2012.)

4.48.060 Overtime wages.

Employees occupying positions allocated in Section 4.48.010 to a grade of 15G or lower, or to a grade of 18P or lower, may be eligible to receive, in addition to the regular salary, pay for overtime hours authorized by the Circuit Attorney. The rate of such overtime pay shall be subject to the requirements of the Fair Labor Standards Act of 1938, as applicable, and shall be allowed on the basis of hours worked and the bi-weekly rate of pay. Compensatory time may be allowed in lieu of overtime pay as provided by law. Employees occupying positions allocated to management grad designed by the letter "M" following the grad number are allocated to a management grade designated by the letter "M" following the grade number are ineligible to receive additional compensation for time worked over that ordinarily required.

(1994 C., § 4.48.060; Ord. No. 71969, § 7, 2-11-2025; Ord. No. 71905, § 7, 10-17-2024; Ord. No. 71693, § 7, 7-10-2023; Ord. No. 71515, § 7, 6-16-2022; Ord. No. 70962, § 6, 1-18-2019; Ord. No. 70450, § 6, 2-8-2017; Ord. No. 70056, § 6, 7-16-2015; Ord. No. 69194, § 6, 7-13-2012.)

Chapter 4.52

COUNTY OFFICER SALARIES

Sections:

4.52.010 Circuit Clerk—Compensation for additional duties.

4.52.020 License Collector—Compensation for additional duties.

4.52.030 Recorder of Deeds—Compensation for additional duties.

4.52.040 Sheriff—Compensation for additional duties.

4.52.050 Treasurer—Compensation for additional duties.

4.52.060 Payment.

4.52.010 Circuit Clerk—Compensation for additional duties.

In addition to the annual compensation of twenty-six thousand five hundred dollars ($26,500.00) set by RSMo 483.083 (Supp. 1982), the Circuit Clerk shall be paid an annual compensation of twelve thousand seven hundred sixty dollars ($12,760.00) for additional duties imposed and being performed; a total annual compensation of thirty-nine thousand two hundred sixty dollars ($39,260.00). (1994 C., § 4.52.010; Ord. No. 58970, § 1, 1983.)

4.52.020 License Collector—Compensation for additional duties.

In addition to the annual compensation of twenty-five thousand dollars set by RSMo 82.390 (1978), the License Collector shall be paid an annual compensation of ten thousand six hundred twenty dollars ($10,620.00) for additional duties imposed and being performed; a total annual compensation of Thirty-five thousand six hundred twenty dollars ($35,620.00). (1994 C., § 4.52.020; Ord. No. 58970, § 2, 1983.)

4.52.030 Recorder of Deeds—Compensation for additional duties.

In addition to the annual compensation of eighteen thousand dollars ($18,000.00) set by RSMo 59.220 (1978), the Recorder of Deeds shall be paid an annual compensation of seventeen thousand six hundred twenty dollars ($17,620.00) for additional duties imposed and being performed; a total annual compensation of thirty-five thousand six hundred twenty dollars ($35,620.00). (1994 C., § 4.52.030; Ord. No. 58970, § 3, 1983.)

4.52.040 Sheriff—Compensation for additional duties.

In addition to the annual compensation of twenty-four thousand five hundred dollars ($24,500.00) set by RSMo 57.408 and 57.550 (1978), the Sheriff shall be paid an annual compensation of thirteen thousand eight hundred twenty-four dollars ($13,824.00) for additional duties imposed and being performed; a total annual compensation of thirty-eight thousand three hundred twenty-four dollars ($38,324.00). (1994 C., § 4.52.040; Ord. No. 58970, § 4, 1983.)

4.52.050 Treasurer—Compensation for additional duties.

In addition to the annual compensation of twenty-five thousand dollars ($25,000.00) set by RSMo 82.520 and 82.607 (1978), the Treasurer shall be paid an annual compensation of twelve thousand three hundred eighty-eight dollars ($12,388.00) for additional duties imposed and being performed; an annual compensation of thirty-seven thousand three hundred eighty-

eight dollars ($37,388.00). (1994 C., § 4.52.050; Ord. No. 58970, § 5, 1983.)

4.52.060 Payment.

The additional compensation provided in this chapter shall be paid in the same manner as such other compensation received by these officials. (1994 C., § 4.52.060; Ord. No. 58970, § 6, 1983.)

Chapter 4.54

MEDICAL EXAMINER'S OFFICE EMPLOYEES

Editor's Note:

Ord. No. 71746, §§ 1—28, adopted November 20, 2023, amended the Code by, in effect, repealing former Ch. 4.54, §§ 4.54.010—4.54.280, and enacting a new Ch. 4.54. Former Ch. 4.54 pertained to similar subject matter, and derived from Ord. No. 71510, adopted June 16, 2022.

Prior ordinance history: Ords. 63779, 64306, 64953, 66401, 67335, 67811, 68122, 68710, 69193, 70019. 71510

Sections:

4.54.010 Alphabetical list of classes.

4.54.020 Official pay schedule for medical examiner grades.

4.54.030 Subsistence and maintenance charges.

4.54.040 Salary range limitations.

4.54.050 Starting salary.

4.54.060 Promotion, demotion, reallocation, transfer, temporary promotion.

4.54.070 Salary adjustment.

4.54.080 Income sources.

4.54.090 Conversion.

4.54.100 Payment of salaries.

4.54.110 Changes to classification plan.

4.54.120 Payroll form.

4.54.130 Certification of payroll.

4.54.140 Minimum work hours.

4.54.150 Overtime.

4.54.160 Holidays.

4.54.170 Vacation.

4.54.180 Sick leave.

4.54.190 Medical leave.

4.54.200 Military leave.

4.54.210 Education reimbursement.

4.54.220 Leaves of absence and family and medical leave.

4.54.230 Insurance benefits.

4.54.240 Death benefit.

4.54.250 Workers compensation and disability leave.

4.24.260 Jury and witness leave.

4.54.270 Deferred compensation.

4.54.280 Retirement.

4.54.010 Alphabetical list of classes.

(a) Beginning with the effective date of this chapter, the following positions in the Medical Examiner's Office with bi-weekly rates are hereby allocated as listed below in accordance with the classification plan by the Chief Medical Examiner to a grade and overtime code in the following section with rates established in Section 4.54.020 of this chapter.

Title	Code	Grade/ Schedule	OVTM
Administrative Assistant I	1621	13 G	3
Administrative Assistant II	1622	14 M	1
Administrative Assistant III	1623	15 M	1
Administrative Secretary	1137	13 G	3
Autopsy Technician I	5411	10 G	3
Autopsy Technician II	5412	11 G	3
Autopsy Technician III	5413	12 G	3
Autopsy Technician Supervisor	5414	13 G	3
Custodian/Courier	3711	8 G	3
Executive Director for Operations	1736	23 M	1
Executive Secretary to the Chief Medical Examiner	1136	14 G	3
Forensic Office Administrator I	1621	19 M	3
Forensic Office Administrator II	1622	20 M	1
Forensic Office Administrator III	1623	22 M	1
Medical Transcriptionist	1122	12 G	3
Medicolegal Investigation Supervisor	2355	17 M	2
Medicolegal Investigator I	2351	13 G	3
Medicolegal Investigator II	2352	14 G	3
Medicolegal Investigator III	2353	16 G	3
Medicolegal Investigator IV	2354	17 G	3
Morgue Attendant	5410	8 G	33
Secretary	1132	10 G	3
X-ray Technician	5441	11 G	3
Intern - Level 1	9991	00 I	3
Intern - Level 2	9992	00 I	3
Intern - Level 3	9993	00 I	3
Intern - Level 4	9994	00 I	3

Title	Code	Grade/ Schedule	OVTM
Intern - Level 5	9995	00 I	3
Intern - Level 6	9996	00 I	3

(Ord. No. 71970, § 1, 2-11-2025; Ord. No. 71746, § 1, 11-20-2023.)

4.54.020 Official pay schedule for medical examiner grades.

The Chief Medical Examiner recommends pay schedules for all pay grades denoted in Section 4.54.010(a) of the classification plan prepared and adopted by management. The official pay schedules and their corresponding salary ranges as hereby adopted in this Section 4.54.020 are as follows:

(a) *General and Management Pay Schedule.*

(1) The following bi-weekly pay schedule for all pay grades denoted with the suffix "G" or "M" shall become effective beginning with the bi-weekly pay period following the effective date of this chapter.

Bi-Weekly Range of Pay in Whole Dollars

Grade	Minimum	Maximum
8	1246	1446
9	1236	1569
10	1246	1704
11	1240	1854
12	1308	2015
13	1442	2221
14	1653	2546
15	1894	2923
16	2173	3353
17	2494	3851
18	2860	4422
19	3285	5079
20	3772	5834
21	4070	6297
22	4391	6798
23	4739	7340

(b) *Shift Differential.* Shift differential shall be paid for certain work assignments. The Chief Medical Examiner shall determine the work assignments for which shift differential will be paid. The assignment or removal of an employee from a work assignment having a shift differential shall be determined by the appointing authority and will not constitute a promotion, demotion, advancement or reduction in pay. The shift differential shall be added to the employee's regular bi-weekly rate.

(1) In order for an employee in Section 4.54.020(a) to be eligible for shift differential compensation, the employee must work a shift that requires the completion of four (4) hours of work between the hours of 4:00 p.m. and 8:00 a.m. the following morning. Employees who are assigned to work schedules that require them to rotate among three (3) shifts (day, evening, night) on a bi-monthly or more frequent basis shall be eligible for shift differential compensation for all three (3) shifts worked. For employees whose pay range is established in Section 4.54.020(a) the shift differential premium shall be one (1) percent of the employee's regular base bi-weekly rate for each eligible shift worked in a bi-weekly pay period.

An employee whose pay range is established in Section 4.54.020(a) shall receive shift differential for working a portion of an eligible shift, providing the portion of the shift not worked is charged to paid leave. Shift differential shall only be paid for whole hours worked; a fraction of an hour shall not be counted toward the payment of the differential.

(2) Except as otherwise provided in this chapter, shift differential shall not be paid to employees compensated on an hourly or per performance basis, or bi-weekly paid employees who work part-time. Neither shall shift differential be paid to full-time regular employees docked for any portion of an eligible shift.

(c) *Weekend Differential.* When employees whose pay range is established in Section 4.54.020(a) work on a Saturday and/or a Sunday they shall be eligible for weekend differential. This differential shall be one (1) percent of an employee's base bi-weekly rate. An employee shall receive weekend differential for working any portion of an eligible day. This differential shall only be paid for whole hours worked, providing the portion of the day not worked is charged to paid leave. Weekend differential shall not be paid to employees compensated on an hourly or per performance basis or bi-weekly paid employees who work part-time. Neither will the weekend differential be paid to full-time regular employees docked for any portion of a day on which the differential would otherwise be paid.

(d) The Chief Medical Examiner may establish per performance rates of pay, hourly rates of pay, or rates of pay for units of work and the conditions for making of any such payments. Such per performance, hourly, or unit-of-work rates may be computed from the bi-weekly scales established in this chapter. Per performance, hourly, or unit-of-work rates shall be established considering the nature of employment, com-

munity practices in compensating similar employment, and the purpose of the program for which the rate is established. Employees paid per performance, hourly, or unit-of-work rates of pay shall not be entitled to vacation, medical leave or holiday leave with pay or other benefits accorded employees paid a bi-weekly rate except that an appointing authority, with the prior approval of the Chief Medical Examiner, and when sufficient funds have been appropriated for the fiscal year, may establish a modified level or type of benefit program when the provision of such benefit is needed in order to attract and retain sufficiently qualified employees to work in specific per performance, hourly, or unit-of-work assignments.

The Chief Medical Examiner is not permitted to utilize per performance and hourly employees as a method of replacing bi-weekly rate employees who would be entitled to employee benefits. Therefore, per performance and hourly employees will be limited to work an equivalent of ten (10) months of full-time employment (one thousand seven hundred thirty-three (1,733) hours) per year.

(e) The Chief Medical Examiner may establish trainee rates of pay. Such trainee rates may be established on an hourly, per performance or bi-weekly basis and shall be less than the rate paid to a regular employee.

(f) The Chief Medical Examiner, may establish rates and conditions under which compensation may be granted for periods of time during which an employee is away from the job site but restricted in his/her activities because of an assignment by the Chief Medical Examiner to be available for a call to return to the work site to perform emergency duties. Pay rates and conditions established under the provisions of this Section 4.54.020(l) may include reasonable minimum pay guarantees for employees required to return to the work site to perform emergency duties. The provisions of this Section 4.54.020(l) shall not be construed to restrict the right of the Medical Examiner to establish call back procedures for employees as an established condition of employment.

(g) The Chief Medical Examiner may authorize payment of special recruitment bonuses, travel, moving and related expenses to recruit employees for positions when funds for this purpose are appropriated to the Office of the Medical Examiner.

(h) The Chief Medical Examiner may approve the payment of hiring incentives to current employees to recruit qualified personnel for positions that are difficult to fill. Hiring incentives shall be in any amount up to twenty-five (25) percent of the annual salary of the position for which the recruitment is made.

(i) (1) The Chief Medical Examiner may establish cash awards or other incentives for an employee or group of employees to recognize and reward increased productivity or effectiveness. The incentives offered may include cash, paid time off, and such other reasonable incentives as the Chief Medical Examiner may determine. Cash awards shall be made from the personal services appropriation of the unit, the account from which the employee's salary is paid or from a general appropriation for this purpose.

(2) The Chief Medical Examiner may establish a program of cash awards or other incentives, not to exceed ten (10) percent of annual salary, paid as an addition to pay, for the purpose of providing additional compensation for employees who are fluent in a foreign language and who use this skill in the necessary and regular recurring performance of the duties of their position. Cash awards shall be made from the personal services appropriation of the unit, the account from which the employee's salary is paid or from a general appropriation for this purpose. Cash awards and incentives under this program shall be made in accordance with guidelines established by the Chief Medical Examiner.

(3) Notwithstanding any other provision in this chapter, the Chief Medical Examiner is authorized to extend the maximum of the pay ranges by up to twenty-five (25) percent for the purpose of compensating positions which are extremely hard to fill.

(4) The Chief Medical Examiner may provide an Employee Suggestion Program, which grants cash and other awards to recognize employee suggestions, which improve City services, operations or facilities. Cash awards to employees for suggestions resulting in tangible savings to the City shall not exceed ten (10) percent of the annual tangible net savings. Cash awards and payments for other awards shall be made from an appropriation for a suggestion program or other appropriate account. Additionally, cash awards for suggestions shall be granted as an addition to pay, which does not change an employee's bi-weekly rate. The Employee Suggestion Program shall be administered in accordance with regulations established by the Chief Medical Examiner. The Chief Medical Examiner may

establish an authority to evaluate suggestions and determine awards; the decisions of this authority shall be final.

(j) An employee who is appointed to a position requiring advanced technical skills or professional qualifications may be paid at a higher rate than prescribed for the class in Section 4.54.020 of this chapter on recommendation of the manager/supervisor with the prior approval of the Chief Medical Examiner. Such advancement shall be made solely on the basis that the employee possesses exceptional academic qualifications related to the duties of the position or that the employee is registered or certified by an organization or board recognized by the Chief Medical Examiner to be especially suited, considering the duties of the position, and when such academic qualification, registration, or certification is not deemed a necessary qualification for the class of position.

The Chief Medical Examiner may also establish other bonus, incentive, or reimbursement programs to encourage current employees to attain registration, licensure, certification, or proof of professional mastery when it is deemed to be in the best interest of the Medical Examiner's Office, or when such credentials are clearly recognized as adding to the capability of individuals in that area. Incentives, bonuses, or reimbursements awarded under such programs do not result in an employee being ruled ineligible for bonuses or salary increases permitted under other sections of this chapter.

(k) The Chief Medical Examiner may establish a program to reimburse, in whole or in part, expenses incurred by employees for the purchase of uniform apparel required in the performance of the duties of their positions, when funds have been budgeted therefore.

The Chief Medical Examiner may exercise the option to furnish such uniform as may be required in the employee's performance of his/her duties.

The Chief Medical Examiner may establish regulations relating to employees' eligibility for reimbursement for uniforms.

Further, when funds have been budgeted therefore, the Chief Medical Examiner may authorize reimbursement to uniformed investigative or autopsy room employees of up to fifty dollars ($50.00) per incident for damage to personal property sustained while the employee was directly engaged in performing assigned and/or authorized duties during a shift.

(l) (1) Contingency assignment differential will be paid for certain assignments when immediate position coverage is needed for any unexpected reason (e.g. death, forced leave, emergency illness, etc.) in a higher pay grade, and shall be granted at the onset of the assignment, not to extend more than one pay period. The Chief Medical Examiner will determine the assignments for which Contingency Assignment Differential will be paid. The assignment of an employee to said assignment having a contingency assignment differential will be determined by the Chief Medical Examiner and will not constitute a promotion or advancement in pay. In addition, the removal of an employee from said assignment shall not constitute a demotion or reduction in pay. The Chief Medical Examiner will review the qualifications of the employee being considered for the assignment to determine if they meet the necessary minimum qualifications for the position being considered.

For an employee whose pay range is established in Section 4.54.020(a) with the prior approval of the Chief Medical Examiner, the contingency assignment differential will be ten (10) percent of the employee's regular base bi-weekly rate added as an addition to pay for each bi-weekly period worked or one (1) percent of the employee's regular base bi-weekly rate for each shift assignment covered, not to exceed one (1) pay period.

(2) Temporary assignment differential will be paid for certain assignments when a vacancy exists for any reason (e.g., separations, terminal vacation, leave of absence, military leave, etc.) in a position with a higher pay grade, and shall be granted for at least one (1) pay period but not more than thirteen (13) pay periods, and offset by any days that the employee by reason of absence is not fulfilling the assignment. The Chief Medical Examiner will determine the assignments for which the temporary assignment differential will be paid. The assignment or removal of an employee from said assignment having a temporary assignment differential will be determined by the Chief Medical Examiner and will not constitute a promotion, demotion, advancement, or reduction in pay. The intended employee must meet the minimum qualifications for the position to be assigned. The temporary assignment differential shall be computed as an addition to pay and not affect the employee's regular bi-weekly rate.

For an employee whose pay range is established in Section 4.54.020(a) with the prior approval of the Chief

Medical Examiner, the temporary assignment differential will be ten (10) percent of the employee's regular base bi-weekly rate added as an addition to pay for each bi-weekly period worked, not to exceed thirteen (13) pay periods. The Chief Medical Examiner may require the establishment of a department policy on temporary assignment differential pay and must sign off on the policy prior to authorizing temporary assignment differential.

(m) City employees who are required by the Chief Medical Examiner to routinely use their personal vehicle in the performance of their duties shall be compensated by receiving a vehicle maintenance and use allowance of two-hundred seventy dollars ($270.00) per month.

(Ord. No. 71970, § 2, 2-11-2025; Ord. No. 71746, § 2, 11-20-2023.)

4.54.030 Subsistence and maintenance charges.

Except as otherwise provided in this chapter, a deduction shall be made on the payroll or a cash charge shall be collected for subsistence and maintenance provided to employees at a rate to be determined by the employee's department or agency head and the Comptroller of the City of St. Louis. The department or agency head shall establish reasonable charges or deductions which have been calculated and assessed with due consideration for all identifiable costs, including labor and overhead, but shall not exceed the actual cost of the items to the City. When the Chief Medical Examiner determines that the duties and responsibilities of a position require an employee to occupy a room or apartment, there shall be no charge for such accommodations.

(Ord. No. 71970, § 3, 2-11-2025; Ord. No. 71746, § 3, 11-20-2023.)

4.54.040 Salary range limitations.

No employee in the Medical Examiner's Office shall be paid at a rate lower than the minimum or higher than the maximum of the salary range established for the class to which his/her position has been allocated, except as otherwise provided in this chapter.

(Ord. No. 71970, § 4, 2-11-2025; Ord. No. 71746, § 4, 11-20-2023.)

4.54.050 Starting salary.

(a) The rate of pay for an excepted position to be paid upon original appointment to the class shall be determined by the Chief Medical Examiner for the excepted position.

(b) Except as otherwise provided in this chapter, the minimum rate of pay for a position shall be paid upon original appointment to the class unless the Chief Medical Examiner finds that it is difficult to secure the services of persons with minimum qualifications or experienced qualified persons at the minimum rate.

The Chief Medical Examiner may establish a recruitment rate for a single position or all positions in a class and authorize employment at an amount above the minimum but within the regular range of salary established for the class. When a recruitment rate is established for an entire class, employees already in such class may have their salaries adjusted to appropriate rates in the new range resulting from the establishment of the recruitment rate.

In the event that the Chief Medical Examiner finds that it is difficult to secure the services of sufficient numbers of employees for a class or occupational series after a diligent recruitment effort, the Chief Medical Examiner may establish a new maximum rate for the class(es) which is not more than twenty-five (25) percent above the maximum established in this chapter.

(c) Employees with permanent status who are eligible for reemployment as determined by the Rules of the Department of Personnel shall be reemployed at an appropriate rate within the new salary range which takes into consideration the employee's prior service in the position, as determined by the Chief Medical Examiner.

(Ord. No. 71970, § 5, 2-11-2025; Ord. No. 71746, § 5, 11-20-2023.)

4.54.060 Promotion, demotion, reallocation, transfer, temporary promotion.

An employee who is transferred, promoted, demoted, or whose position is reallocated after the effective date of this chapter, shall have his/her rate of pay for the new position determined as follows:

(a) *Promotion:* This shall be defined as a change of an employee in the Medical Examiner's Office from a position of one class to a position of another class with a higher pay grade or a higher starting minimum salary.

(1) When an employee is promoted to a position in the General or Management Pay Schedule, the employee's current bi-weekly rate of pay shall be set at a rate which is five (5) percent higher than the rate received immediately prior to the promotion. The Chief Medical Examiner, may increase the pay of an em-

ployee up to twenty (20) percent when such action is needed to attract experienced, qualified candidates for a position. Such salary determinations shall take into consideration the nature and magnitude of the accretion of duties and responsibilities resulting from the promotion. However, no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(2) Temporary promotion: When an employee, whose salary range is established in Section 4.54.020(a) is certified and temporarily promoted to a vacant position, for a limited duration, the employee's current salary shall be adjusted as provided in Paragraph (a)(1) of this section. Upon expiration of the temporary promotion, the employee shall be returned to his/her former rate of pay, adjusted by any increases the employee would have received in the absence of the temporary promotion. In no case shall the employee's salary be above the maximum of the salary range, unless otherwise provided for in this chapter.

(b) *Demotion:* This shall be defined as a change of an employee in the Medical Examiner's Office from a position of one class to a position of another class which has a lower pay grade and a lower starting minimum salary.

(1) If an employee is demoted for disciplinary reasons in accordance with the Rules of the Medical Examiner's Office and established disciplinary procedures, his/her rate of pay shall be established at a rate within the range for the new position which is at least five (5) percent lower than the rate received immediately prior to the demotion, except no employee shall be reduced below the minimum of the range unless otherwise provided for in this chapter. The amount of the reduction shall be determined by the Chief Medical Examiner.

(2) If an employee accepts a voluntary demotion, his/her current rate of pay shall be reduced within the range for the new position which is five (5) percent lower than the rate received immediately prior to demotion, except that employees who are in a working test period and demote to their previous class of position or pay grade, will return to the rate received immediately prior to the promotion, plus any adjustments as otherwise provided in this chapter. No employee shall be paid less than the minimum nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(3) When an employee is demoted for reasons in the best interest of the Medical Examiner Office as determined by the Chief Medical Examiner, his/her salary may be reduced by reason of the new salary range and grade with the prior approval of the Chief Medical Examiner. If the salary of such employee is above the maximum for the new position the employee's salary shall not be increased so long as he/she remains in the position, except as otherwise provided by this chapter.

(c) *Reallocation:*

(1) If the employee's position is reallocated to a class in a lower pay grade and the employee's rate of pay for the previous position is within the salary range of the new position, his/her salary shall remain unchanged.

(2) The salary of an employee whose position is allocated to a class in a higher pay grade shall be determined in accordance with the provisions of this Section 4.54.060(a)(1) relating to salary advancement on promotion.

(d) *Transfer:* The salary rate of an employee who transfers to a different position in the same class, or from a position in one class to a position in another class in the same pay grade, shall remain unchanged, provided that no employee shall be paid less than the minimum rate nor more than the maximum rate for the new class of position, except as otherwise provided in this chapter.

(e) *Over Maximum:* The salary of an employee, which is in excess of the maximum of the range prescribed by this chapter for the class and grade to which his/her position has been allocated or may be reallocated, shall not be reduced by reason of the new salary range and grade. The salary of such employee shall not be increased so long as he/she remains in the class of position, except as otherwise provided by this chapter. (Ord. No. 71970, § 6, 2-11-2025; Ord. No. 71746, § 6, 11-20-2023.)

4.54.070 Salary adjustment.

Salary adjustments for all employees in competitive positions shall be based on considerations of merit, equity, or success in fulfilling predetermined goals and objectives as herein provided.

(a) Competitive positions for which salary is established in Section 4.54.020(a), general and management schedule;

(1) Any employee whose salary is established in Section 4.54.020(a), general and management pay sched-

ules, may receive a service rating in accordance with the City's Service Rating Manual. The rating together with the standards of performance established in the rating manual shall determine eligibility for a one and five-tenths (1.5) percent within-range (merit) increase at intervals as outlined in the City's Service Rating Manual or other pay regulation(s) or ratings as determined by the Chief Medical Examiner. Notwithstanding any other section of this chapter, all employees in the general and management pay schedules who would be eligible to receive an annual increase on their regular service rating date will receive a one and five-tenths (1.5) percent increase regardless of their current rate or place in the pay schedule.

(2) A non-exempt (Overtime Code 3) employee whose pay is established in Section 4.54.020(a) of this chapter who receives an Overall Rating of "Unsuccessful" as defined by the City's Service Rating Manual, shall have his/her salary reduced as determined by the standards established in the City's Service Rating Manual, but not less than the minimum of the pay grade range.

(b) As used in this chapter, "anniversary date" means the date following fifty-two (52) weeks of continuous service from the date of original appointment or from the date of the last salary adjustment, if other than a temporary reduction in pay for disciplinary reasons, a demotion or an across-the-board chapter increase, an increase resulting from an authorized incentive program, or an upgrade of the classification concurrent with adoption of the chapter. Absence from service as a result of any authorized paid leave, suspensions, military leave, or family/medical leave will not interrupt continuous service. Absence from service for any other cause shall result in breaking continuity of service and establishment of a new anniversary date, except as otherwise provided in this chapter. The Chief Medical Examiner may authorize different anniversary dates for an employee or groups of employees.

(c) The Chief Medical Examiner may evaluate the performance of an employee whose salary is established in Section 4.54.020(a) of this chapter for the purpose of a salary adjustment only at intervals as described above except in the case of:

(1) *Exceptional Performance of Duties:* With the prior approval of the Chief Medical Examiner may advance the salary of an employee who demonstrates exceptional performance of duties after serving twenty-six (26) weeks of employment at the same rate in the salary range by not more than ten (10) percent; this may be in addition to any merit increase received.

(2) *Substandard Performance of Duties:* The Chief Medical Examiner may reduce the salary of an employee whose level of performance is significantly diminished and no longer warrants payment at the current rate within the range as provided in the City's Service Rating Manual; providing the employee's salary is above the minimum of the range, established in Section 4.54.020(a) and allocated to Overtime Code 3. The granting of any such increase or decrease in salary shall be made at the beginning of a payroll period, as determined by the Chief Medical Examiner, following approval of such salary action.

(d) The Chief Medical Examiner may approve adjustments to correct or mitigate serious and demonstrable internal pay inequities. Salary adjustments under this provision shall preclude adjustments to compensate or reward employees for long-term or meritorious service.

(e) The pay of any employee may be decreased as a disciplinary action by the Chief Medical Examiner to a lower rate. Any such decrease shall be made in accordance with the established disciplinary procedures. The decrease shall not be greater than fifteen (15) percent of the current salary rate. The decrease may be below the minimum of the pay range for the class. The appointing authority may determine the pay decrease shall be effective for a specific number of bi-weekly pay periods provided, however, that such decrease shall not be effective for more than thirteen (13) bi-weekly pay periods.

(f) An employee who is temporarily promoted shall be eligible for within range salary adjustments under provisions of this Section 4.54.070.

(g) The Chief Medical Examiner may approve a within range salary adjustment or other incentives to retain employees in positions that are difficult to fill, or because of their unique requirements. Said adjustment may only be granted once during a twenty-six-week period.

(Ord. No. 71970, § 7, 2-11-2025; Ord. No. 71746, § 7, 11-20-2023.)

4.54.080 Income sources.

Any salary paid to an employee in the Medical Examiner's Office shall represent the total remuneration for the employee, excepting reimbursements for

official travel and other payments specifically authorized by chapter. No employee shall receive remuneration from the City in addition to the salary authorized in this chapter for services rendered by the employee in the discharge of the employee's ordinary duties, of additional duties which may be imposed upon the employee, or of duties which the employee may undertake or volunteer to perform.

Whenever an employee not on an approved paid leave works for a period less than the regularly established number of hours a day, days a week or days bi-weekly, the amount paid shall be proportionate to the hours in the employee's normal work week and the bi-weekly rate for the employee's position. The payment of a separate salary for actual hours worked from two (2) or more departments, divisions or other units of the City for duties performed for each of such agencies is permissible if the total salary received from these agencies is not in excess of the maximum rate of pay for the class.

(Ord. No. 71970, § 8, 2-11-2025; Ord. No. 71746, § 8, 11-20-2023.)

4.54.090 Conversion.

(a) Pay schedules in Section 2(a) in Ordinance 71746 shall continue in effect until the beginning of the first bi-weekly pay period starting after the effective date of this chapter, and the rates to be paid to employees in positions of any classes for which a rate is established or changed in Section 4.54.020(a) of this chapter shall become effective and be adjusted (if necessary) as follows:

The salary of each employee whose pay range is established in Section 4.54.020(a) of this chapter whose class has been allocated to a higher pay grade in the appropriate pay schedule as determined by the Chief Medical Examiner shall have their current salary increased to a rate, rounded to the nearest whole dollar, which is not less than but is closest to a rate which is five (5) percent higher than the rate received immediately prior to promotion, but not less than the minimum of the pay range, whichever is the greater.

(b) No employee shall be reduced in salary by reason of the adoption of the new pay schedules in this chapter.

(c) The salary of an employee serving in a trainee position, which remains above the new trainee rate for his/her position, shall remain unchanged.

(d) The Chief Medical Examiner may establish a special conversion procedure for a class or position in the event that the Director determines that a serious inequity would be created by the application of the conversion procedures established in this Section 4.54.090.

(e) All full-time employees whose salary is established in Section 4.54.020(a), General and Management pay schedules whose bi-weekly rate is within the range of pay or above the maximum of the range of pay shall have their bi-weekly rate increased by three (3) percent effective beginning with the start of the bi-weekly pay period following the effective date of this chapter.

(f) The Chief Medical Examiner shall establish such procedures as needed to place this chapter in effect and interpret its provisions.

(Ord. No. 71970, § 9, 2-11-2025; Ord. No. 71746, § 9, 11-20-2023.)

4.54.100 Payment of salaries.

All compensation for positions in the Medical Examiner's Office shall be paid bi-weekly. The Chief Medical Examiner and Comptroller shall establish the procedure for listing employees on the various payrolls. The payment due each employee for service, except as otherwise provided, shall be made not later than sixteen (16) days after the end of the bi-weekly pay period. In the event that an employee is dismissed or has been employed for occasional or emergency work, the Comptroller may immediately pay the employee upon termination of service without waiting for the regular bi-weekly pay date of the Department, Division, Section, Office, Agency, Board or Commission where the employee worked.

(Ord. No. 71970, § 10, 2-11-2025; Ord. No. 71746, § 10, 11-20-2023.)

4.54.110 Changes to classification plan.

Whenever the Chief Medical Examiner finds it necessary to add a new class to the classification plan, the Chief Medical Examiner shall allocate the class to an appropriate grade and schedule in this chapter and notify the Board of Aldermen of this action.

Whenever the Chief Medical Examiner finds it necessary to change the overtime code of an existing class within the classification plan, the Chief Medical Examiner shall change the overtime code and notify the Board of Aldermen of this action.

Whenever the Chief Medical Examiner finds it necessary to change the pay schedule of an existing class within the classification plan, the Chief Medical Examiner shall allocate the class to the appropriate schedule in this chapter and notify the Board of Aldermen of this action.

The pay grade allocated to a class of position within the classification plan shall remain unchanged for the duration of the existing compensation chapter. Whenever the Chief Medical Examiner considers it necessary to change the pay grade of an established class of position, such adjustment can only be made concurrent with the adoption of a new compensation chapter. Recommendation for the allocation of a new pay grade shall be made by the Chief Medical Examiner for final approval by the Board of Aldermen.
(Ord. No. 71970, § 11, 2-11-2025; Ord. No. 71746, § 11, 11-20-2023.)

4.54.120 Payroll form.

The Chief Medical Examiner shall prescribe forms on which subordinate managers shall certify to the fact that a vacancy exists in a lawfully created position and to the lawful appointment of a person to fill the position. The Chief Medical Examiner shall indicate on these forms the proper allocation of the position and the rate at which payment is to be made. When approved by the Chief Medical Examiner and submitted to the Comptroller, these forms shall constitute authorization for the initial placing of a person's name on the payroll. The Comptroller shall not authorize any change in the rate of pay of an individual on the payroll unless approved by the Chief Medical Examiner. The Comptroller shall provide the Chief Medical Examiner with a copy of each payroll audited and found correct within twenty-one (21) days after audit and approval of the payroll by the Comptroller's Office.
(Ord. No. 71970, § 12, 2-11-2025; Ord. No. 71746, § 12, 11-20-2023.)

4.54.130 Certification of payroll.

The Chief Medical Examiner shall certify on each payroll or a subsidiary document that each person whose name appears on the payroll has been lawfully appointed at a salary provided by this chapter and that the employee has actually worked the time for which he/she will be paid, subject to the provisions of this chapter governing hours of work and leaves of absence in the Medical Examiner's Office.
(Ord. No. 71970, § 13, 2-11-2025; Ord. No. 71746, § 13, 11-20-2023.)

4.54.140 Minimum work hours.

The Chief Medical Examiner shall establish procedures to assure that the employees under his/her supervision are actively engaged in the performance of the duties of their positions in accordance with the provisions of this section.

Each manager/supervisor shall submit to the Chief Medical Examiner the work schedule established for each position in the work unit. Work schedule reports shall be submitted upon request of the Chief Medical Examiner or whenever the manager/supervisor proposes to change the permanent work schedule of a position. The work schedule submitted by the manager/supervisor shall constitute the normal work schedule for the position when approved by the Chief Medical Examiner.

All employees in the Medical Examiner's Office shall be in attendance at their work in accordance with schedules established under the provisions of this Section 4.54.140, subject to other provisions of this chapter with respect to hours, holidays, vacation, medical leave, furloughs, sick leave, military leave, and leaves of absence with or without pay.

(a) Employees whose salaries are established in Section 4.54.020(a): Forty (40) hours shall constitute the average minimum required weekly hours of service in an employment cycle under regular full-time employment for all City employees paid on a bi-weekly basis and occupying positions in the Medical Examiner's Office. The minimum daily and annual service required of such employees shall be in proportion to the average minimum weekly hours established.

Each manager/supervisor shall so arrange the time for reporting for work, for luncheon intermission, and for quitting work of the various employees under their jurisdiction.

(b) Management Employees: Managers for employees occupying full-time positions whose salaries are established in Section 4.54.020(a) of this chapter shall initiate procedures to see that such employees are engaged in the performance of their duties on a full-time basis. Full-time employment for any employee whose classification is denoted in the Management Schedule shall be defined as an average of forty (40) hours per week of time devoted to the duties of the position on an annual basis.
(Ord. No. 71970, § 14, 2-11-2025; Ord. No. 71746, § 14, 11-20-2023.)

4.54.150 Overtime.

(a) The Chief Medical Examiner shall determine those positions in the Medical Examiner's Office of the City of St. Louis which are exempt from overtime compensation and those positions which are not exempt from overtime compensation. The overtime codes established for each class in Section 4.54.010(a) of this chapter shall be interpreted as follows:

OVERTIME CODE (OVTM):

1 These classes are primarily managerial in nature, but may also include some professional or administrative classes that are ineligible for overtime pay under all but emergency conditions as described in Section 4.54.150(d) of this chapter.

2 These are supervisory, professional, and administrative classes that are exempt from overtime compensation, but which the City compensates for overtime at the straight (1.0×) time rate.

3 These are non-exempt classes that receive overtime compensation at the one and one-half (1.5×) time rate.

Managers/Supervisors are prohibited from changing employee work schedules to avoid the payment of overtime.

For purposes of determining overtime pay rates for non-exempt employees, the regular hourly rate of pay shall be used.

Any employee in a class which has been allocated to Overtime Code 3 (non-exempt) in this chapter shall be compensated for overtime work in accordance with the provisions of this section. Each manager/supervisor shall designate and submit to the Chief Medical Examiner the official work week and schedule or work cycle for all non-exempt positions in the work unit. The average number of scheduled hours in a bi-weekly pay period shall not be less than eighty (80) for full-time employment.

Whenever an Overtime Code 3 employee whose pay matrix is in Section 4.54.020(a) works hours in excess of the maximum established for an official work week or work cycle, usually forty (40) hours in a work week such hours shall be paid at the one-and-one-half time (1.5x) rate. In addition to the actual hours worked, vacation, and compensatory time only shall count as hours worked for the purpose of determining eligibility for overtime compensation.

(a) Any employee in a class which has been allocated to Overtime Code 2 in Section 4.54.010(a) of this chapter shall be compensated for overtime by granting the employee pay or compensatory time off at the straight (1.0×) time rate. Each appointing authority shall designate and submit to the Chief Medical Examiner the official work week or work cycle, which is usually forty (40) hours, for all exempt (Code 2) positions in the work unit. Whenever a full-time employee in an exempt (Code 2) position is directed by management, with the approval of the appointing authority, to work hours in excess of the maximum established for an official work week or work cycle it shall be considered overtime. In addition to the actual hours worked, vacation, and compensatory time only shall count as hours worked for the purpose of determining eligibility for overtime compensation. Straight time (1.0×) overtime shall be compensated at the employee's regular hourly rate of pay, or by granting the eligible employee compensatory time off at the rate of one (1) hour for each hour of overtime worked. The average number of scheduled hours in a bi-weekly pay period shall not be less than eighty (80) for full-time employment. The regular hourly rate of pay for an exempt (Code 2) bi-weekly paid employee shall be determined by dividing the employee's regular bi-weekly rate of pay by the average number of regularly scheduled hours of work in a bi-weekly pay period.

(b) Part-time bi-weekly paid employees and employees paid on an hourly or per performance basis shall be compensated for overtime work in accordance with the overtime provisions of this section and with consideration for community practices in compensating similar employment.

(c) The Chief Medical Examiner may compensate Overtime Code 1 employees at the straight-time (1.0×) rate, when both of the following conditions exist: 1) the Mayor of the City of St. Louis declares an emergency due to serious and protracted conditions which threaten continuous City Service, preservation of public peace, health, or safety, and 2) the Chief Medical Examiner directs an employee or group of employees to work in excess of forty (40) hours per week. The manager/supervisor shall maintain attendance records of the assignment(s) and submit such records at the request of the Chief Medical Examiner.

(d) Employees who wish to use compensatory time earned in lieu of pay must make their request in writing at least twenty-four (24) hours in advance of the day or days requested. The manager/supervisor shall keep in

mind the staffing needs of the department when granting time off, but in any case, time off will not be unreasonably denied.

Pay shall be the regular method of compensation for recorded overtime hours of work for employees in classes with Overtime Code 3. However, a manager/supervisor shall compensate a non-exempt bi-weekly paid employee for overtime work by granting the employee compensatory time off in lieu of pay only if the employee requests compensatory time, in writing.

Employees engaged in public safety, emergency response or seasonal activity as defined by the Chief Medical Examiner may have a maximum balance of two hundred forty (240) hours of compensatory time; except that Management Personnel shall only be allowed to accumulate up to forty (40) hours of compensatory time. All other employees are allowed a maximum balance of one hundred twenty (120) hours of compensatory time. These maximum balances of compensatory time shall apply to employees working an average work week of forty (40) hours; the maximum balance of compensatory time for employees whose average work week is more or less than forty (40) hours shall be proportionate. No provision of this section establishing a maximum balance of compensatory time shall serve to cancel any compensatory time due to an employee or to deny an employee payment for recorded compensatory time earned in accordance with the provisions of the compensation chapter in effect at the time the compensatory time was earned.

Each manager/supervisor shall establish procedures to assure that non-exempt employees are promptly granted time off when such employees request to use their earned compensatory time. A manager/supervisor may not deny non-exempt employees' requests for earned compensatory time off except when such approval would create an extreme business hardship. When a manager/supervisor determines that the work schedule of the organization will not permit the granting of such time off, the manager/supervisor shall pay the employee in that same pay period for all or a portion equivalent to the time requested of the employee's accrued compensatory time. This provision requiring the prompt granting of requested time off applies only to compensatory time that is earned as a result of the employee working overtime; it does not apply to compensatory time earned as a result of an incentive program or bonus award program.

Compensatory time earned by exempt employees shall be granted to an employee at the discretion of the manager/supervisor in one (1) of the following ways: 1) on request of the employee; 2) on termination of services with the City.

(e) Before an employee is transferred, promoted or demoted from a position under one manager/supervisor to a position under another manager/supervisor or to another unit with a different appropriation, all compensatory time shall be granted or paid. Upon the death of an employee, the person or persons entitled by law to receive any compensation due to the employee shall be paid any amount due to the employee on the date of death.

(f) All sections shall keep daily attendance records of Medical Examiner Employees and shall submit periodic reports of: 1) unexcused absences and leaves; 2) reports of overtime earned, granted, and paid; or 3) the nonoccurrence of same to the Chief Medical Examiner in the form and on the dates specified as required or requested.

(Ord. No. 71970, § 15, 2-11-2025; Ord. No. 71746, § 15, 11-20-2023.)

4.54.160 Holidays.

(a) Medical Examiner employees working full-time who are paid a bi-weekly rate shall be entitled to leave with pay, pay, or compensatory time off in lieu of pay or paid leave for regularly scheduled work on the following designated holidays:

Date	Holiday
January 1	New Year's Day
Third Monday in January	Rev. Martin Luther King Jr. Day
Third Monday in February	Presidents' Day
Last Monday in May	Memorial Day
June 19	Juneteenth
July 4	Independence Day
First Monday in September	Labor Day
November 11	Veterans' Day
Fourth Thursday in November	Thanksgiving Day
Day after Thanksgiving	Day after Thanksgiving
December 25	Christmas Day

In addition to the above enumerated designated holidays, full-time Medical Examiner employees shall be entitled to leave with pay, pay, or compensatory time off

in lieu of pay as established by this Section 4.54.160 on any day or partial day the Mayor declares by proclamation the closing of City offices.

Employees working full-time and paid a bi-weekly rate whose pay is established in Section 4.54.020(a) of this chapter shall receive leave with pay, pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day or shift. For example: Employees working an average of forty (40) hours a week, five (5) days a week, eight (8) hours a day shall receive eight (8) hours of compensation for the holiday; employees working an average of forty (40) hours a week, four (4) days a week, ten (10) hours a day shall receive ten (10) hours of compensation for the holiday.

When the day of observance of a holiday is changed by State or Federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by State or Federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When one (1) of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one (1) of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

(b) Each manager/supervisor shall determine the manner of granting holidays and shall report his/her determination to the Chief Medical Examiner, if required by the Chief Medical Examiner. When full-time employees, whose pay is established in Section 4.54.020(a) of this compensation chapter, are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked. Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day or shift. Except as otherwise provided in this section, when a City holiday falls on an employee's regularly scheduled day off, the employee shall be entitled to have compensatory time added to his/her balance in an amount proportionate to the number of hours regularly scheduled in a day or shift. If an employee is docked from the payroll for one hour or more on the full scheduled workday preceding a holiday, the full scheduled work day following a holiday, or on a scheduled holiday, the employee shall not be compensated for the holiday.

The holiday compensation procedures established by this Section 4.54.160 shall apply to full-time Medical Examiner employees paid a bi-weekly rate. Part-time bi-weekly rate employees shall be compensated for holidays in proportion to the percentage of time they are regularly scheduled to work. Employees paid on an hourly or per performance basis shall not be entitled to holiday compensation, except as otherwise provided in this chapter.

In the event that the holiday schedule established in this Section 4.54.160 is revised, employees who are granted compensatory time in lieu of all holidays shall have their leave benefits adjusted accordingly. The Chief Medical Examiner may establish additional or alternate holiday leave policies for employees occupying public safety positions which qualify for the special overtime pay provisions under Federal law or for employees with official work schedules authorized by the Chief Medical Examiner which exceed the normal forty-hour weekly work schedule.

Procedures developed in compliance with this Section 4.54.160 shall be designed to treat employees in the same manner who work substantially equivalent work schedules.

(Ord. No. 71970, § 16, 2-11-2025; Ord. No. 71746, § 16, 11-20-2023.)

4.54.170 Vacation.

Vacation leave with pay shall be granted to employees paid a bi-weekly rate in permanent competitive positions working fifty (50) percent time or more. The Chief Medical Examiner may establish additional guidelines and policies to govern the administration of vacation leave benefits in the Medical Examiner's Office.

(a) Vacation hours shall be granted to employees whose pay is established in Section 4.54.020(a), with appointment date before April 23, 1989.

Pay Established in Section 4.54.020(a)

Length of Cumulative Service	Bi-Weekly Accrual Rates	Annual Equivalent
1 but less than 5 years	5	130
5 but less than 10 years	6	156
10 but less than 15 years	7	182
15 but less than 20 years	8	208
20 or more years	9	234

Employees employed before July 18, 2010 whose pay is established in Section 4.54.020(a) of this chapter completing five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumu-

lative service, or twenty (20) years of cumulative service shall have forty (40) hours of vacation added to their existing balance,

(b) Vacation hours shall be granted to employees whose pay is established in Section 4.54.020(a) with appointment date on or after April 23, 1989.

Pay Established in Section 4.54.020(a)

Length of Cumulative Service	Bi-Weekly Accrual Rates	Annual Equivalent
1 but less than 5 years	3	78
5 but less than 10 years	5	130
10 but less than 15 years	6	156
15 but less than 20 years	7	182
20 or more years	8	208

Employees employed before July 18, 2010 whose pay is established in Section 4.54.020(a) of this chapter completing five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumulative service, or twenty (20) years of cumulative service shall have forty (40) hours of vacation added to their existing balance.

(c) Employees employed on or after July 18, 2010 will not have the forty (40) hours added to their vacation balance upon completion of five (5) years of cumulative service, ten (10) years of cumulative service, fifteen (15) years of cumulative service, or twenty (20) years of cumulative service.

(d) All references in this chapter, except as otherwise noted, to accrual rates, additions to, and accrual maximums for vacation are for employees working a scheduled work week of forty (40) hours. Vacation rates, additions and maximums shall be computed on a proportionate basis for employees whose average work week is more or less than forty (40) hours. When an eligible employee's scheduled work week is changed, the employee's rate of accrual shall be changed proportionately. All references in this chapter to cumulative service for vacation shall mean cumulative service without a break in service of more than one (1) year, except as provided otherwise in this chapter. No employee who works less than fifty (50) percent time or who is serving in a limited-term position shall be eligible to accrue vacation.

(e) (1) The maximum vacation balance for those working an average work week of forty (40) hours shall be six hundred (600) hours. Vacation accrual maximums, for those working more or less than forty (40) hours per week, but at least fifty (50) percent time, shall be established in accordance with Section 4.54.170 of this chapter.

(2) When an employee's full-time average work week is changed, the maximum vacation balance shall be changed proportionately. In addition, the employee shall have his/her current vacation balance adjusted so that the vacation shall maintain the same position relative to the new maximum balance as existed with the employee's previous maximum balance. Accrual of vacation shall cease when an employee accumulates the maximum vacation balance established for the assigned work schedule and shall not resume until the vacation balance is less than the maximum amount.

(f) Accrual of vacation shall begin and be credited upon the first bi-weekly pay period and each pay period thereafter but employees must complete the entire pay period to accrue the vacation leave at the end of said pay period:

(1) Of appointment;

(2) Of return to duty from leave of absence;

(3) Of restoration to employment of one-half (fifty (50) percent) time or more.

Vacation leave shall be granted in whole hour units. On termination of service, any fractional hour shall be made whole. The accrual of vacation leave shall cease at the employee's last day at work or beginning of terminal leave.

(g) Managers/supervisors shall be responsible for establishing all vacation leave schedules, but may not discipline employees by imposing unusual vacation schedules. Vacation shall be granted to the employee at the discretion of the manager/supervisor as provided by this chapter in one (1) of the following ways:

(1) When the employee requests vacation leave in accordance with departmental policies.

(2) When directed to take paid time off by the manager/supervisor.

(3) When an employee is terminated or resigns from the Medical Examiner's Office.

(4) When an employee whose salary is established in Sections 4.54.020(a) reaches the established maximum accrual and would cease accruing vacation, the employee may notify the manager/supervisor in writing of his/her intention to schedule vacation. Such notice shall be at least seven (7) days prior to the first work day the employee intends to take off. If the manager/

supervisor fails to establish a different vacation schedule, the employee may, at will and without assuming liability for disciplinary action, take the paid leave, which was proposed in writing.

(5) All employees may request payment from the appointing authority for forty (40) hours of vacation accrual in lieu of scheduling paid leave provided that the full vacation allowance for that year is not exceeded. This may be done a maximum of once in each calendar year. Management employees may request payment from the appointing authority for up to an additional forty (40) hours of their vacation accrual balances in lieu of scheduling paid leave if their schedules do not permit them to be absent from work. These requests are subject to the prior approval of the Chief Medical Examiner.

(h) During the first twelve (12) months of employment, unless stated otherwise in this chapter, accrued vacation may be granted to an employee provided that the employee has completed six (6) months of continuous service. When the service of an employee is terminated after twelve (12) months of continuous service, any accumulated vacation that is due the employee shall be paid. When employment is terminated before completing twelve (12) months of continuous service, any previously advanced vacation leave shall be deducted from the employee's final pay.

(i) Employees who separate from the Medical Examiner's Office and who return to the Medical Examiner's Office within twenty-four (24) months of the separation, will be given credit for prior continuous service in determining the vacation accrual rate in accordance with Section 4.54.170(a) or 4.54.170(b) of this chapter and based on the date of the employee's original appointment.

(j) Employees who move to the Medical Examiner's Office from a non-Medical Examiner's Office shall be given credit for the years of service in the non-Medical Examiner's Office in determining the vacation accrual rate in accordance with Section 4.54.170(a) or 4.54.170(b) of this chapter and based on the date of the employee's original appointment.

(k) Employees who return to work from a "reemployment from layoff" eligible list shall be eligible to use vacation as soon as it is accrued unless stated otherwise in this chapter provided the employee has completed six (6) months of continuous service prior to the layoff and with approval of the manager/supervisor. An employee who has completed less than six (6) months of continuous service will be required to complete the remaining portion of the six (6) months period before being eligible to use vacation.

Any such reemployed worker shall be given credit for prior continuous service in determining the employee's vacation accrual rate in accordance with the schedule established in Section 4.54.170(a) or 4.54.170(b) of this chapter and based on the employee's original appointment.

(l) Managers/supervisors shall be responsible for the management of their vacation schedules so as to most effectively administer their organizations and fulfill the desire of employees in the establishment of leave schedules.

(m) Accrued vacation shall be carried with an employee when transferred, promoted, or demoted from a position under one appointing authority to a position under another appointing authority without a break in service or change in method of pay. Upon the death of an employee, the person or persons entitled by law to receive any compensation due the employee shall be paid the amount due the employee for accrued vacation.

(n) With the approval of the Chief Medical Examiner, a retiring employee may be paid on the payroll for accrued vacation in the month prior to retirement without inclusion in the employee's final average compensation. The Chief Medical Examiner may pay previously accrued vacation off in a lump sum to an employee whose service with the City Medical Examiner's Office has terminated. Such payment shall be made on the employee's last regular paycheck. The lump sum payment shall include compensation for any holidays occurring during the employee's terminal vacation leave period as if employee's vacation had been run out on payroll.

(o) Employees occupying excepted positions in the Medical Examiner's Office shall be granted vacation at the discretion of the Chief Medical Examiner. An employee whose term in an excepted position ends and who is then appointed to a permanent competitive position working fifty (50) percent time or more shall become eligible to accrue vacation leave with pay upon appointment to the competitive position. Length of cumulative service for the purpose of determining rate of vacation leave accrual shall be based on the employee's original date of appointment to the excepted position, providing there was no break in service between

expiration of the excepted position and appointment to the permanent competitive position. The date of appointment to the permanent competitive position shall be used to determine the appropriate rate of vacation accrual for the corresponding length of cumulative service in accordance with the schedule established in Section 4.54.170(b).

(p) Managers/supervisors shall report leave with pay for vacation and such other authorized absences as the Chief Medical Examiner shall designate in such form and at such time as the Chief Medical Examiner may require.

(Ord. No. 71970, § 17, 2-11-2025; Ord. No. 71746, § 17, 11-20-2023.)

4.54.180 Sick leave.

(a) Employees ceased accruing sick leave beginning July 18, 2010. Thereafter, an employee may choose to use his/her sick leave in accordance with regulations established by the Chief Medical Examiner.

(b) An active employee who is a member of the Employees Retirement System of the City of St. Louis, and who applies for retirement and immediately retires from active service, shall receive payment for his/her sick leave balance less any sick leave credited or paid to a member or used in the calculation of retirement benefits under this or any other chapter(s). If the Employees Retirement System provides for sick leave to be credited or paid to a member or used in the calculation of retirement benefits, this payment shall be limited to a maximum of fifty (50) percent of the value of the employee's sick leave balance. If the Employees Retirement System of the City of St. Louis provides for sick leave to be credited or paid to a member or used in the calculation of retirement benefits, this payment shall be fifty (50) percent of the value of the employee's sick leave balance at time of retirement.

(c) If a member of the Employees Retirement System of the City of St. Louis who had been otherwise eligible for Normal or Early Service Retirement dies his/her estate may receive payment based on the calculation above on the employee's sick leave balance, if any. Payment shall be made in accordance with the procedures established by the Chief Medical Examiner.

(d) An employee who is reemployed from an authorized layoff shall have his/her prior sick leave balance if any restored, provided this balance has not be used in the determination of pension benefits paid to the retiree.

(Ord. No. 71970, § 18, 2-11-2025; Ord. No. 71746, § 18, 11-20-2023.)

4.54.190 Medical leave.

(a) Medical leave with pay shall be granted to bi-weekly rate employees in permanent competitive positions working fifty (50) percent time or more in accordance with regulations and procedures established by the Chief Medical Examiner.

(1) All employees, unless otherwise stated in this chapter, shall accrue three (3) hours of medical leave for each bi-weekly pay period of employment but must complete the entire pay period to accrue the medical leave at the end of said pay period. This accrual rate is established for employees working an average work week of forty (40) hours. Medical leave shall be computed on a proportionate basis for employees whose average work week is more or less than forty (40) hours. An eligible employee may be granted paid medical leave by his/her appointing authority after completing twenty-six (26) weeks of continuous service.

(b) The Chief Medical Examiner may establish a system of cash awards, paid time off or other incentives to reward employees for perfect and near perfect attendance.

(c) An appointing authority shall remove an employee from the payroll for unexcused absence in accordance with regulations and procedures established by the Chief Medical Examiner. When an employee is docked from the payroll under the provisions of this section, the amount deducted from his/her regular bi-weekly rate of pay shall be one times (1.0×) the regular hourly rate as defined in this chapter for each hour of unexcused absence. If an employee is docked from the payroll for one (1) hour or more in a bi-weekly pay period, he/she will cease to accrue medical leave for the pay period.

(d) If management decides to send their employees or a group of employees' home due to inclement weather, they will not lose their medical leave accrual for that pay period.

(e) All leave with or without pay for illness, injury, or physical inability to perform assigned duties shall be recorded on the payroll or a subsidiary document in the manner established by the Chief Medical Examiner. Compensation for periods of absence from work when an employee sustains an injury by accident on the job shall be governed by the provisions of Section 4.54.250 (workers' compensation and disability leave) of this chapter.

(f) An employee who is reemployed from an authorized layoff shall have his/her prior medical leave

balance and sick leave balance restored if any, provided any sick leave balance has not been credited to the employee's length of service in determining pension benefits paid to the retiree. An employee who is reemployed from an authorized layoff and who has a medical and/or sick leave balance and who completed twenty-six (26) weeks of continuous employment prior to the layoff may take approved medical and/or sick leave upon reemployment.

(g) Each manager/supervisor shall institute procedures, in accordance with regulations established by the Chief Medical Examiner that will discourage the improper use of medical leave with pay. When an employee is removed from the payroll for absence not approved by the appointing authority, the employee shall be notified promptly in writing.

(h) Employees shall not receive payment for any medical leave balance and it shall not be used in the calculation of retirement benefits or payments under this chapter or any other ordinance.

(Ord. No. 71970, § 19, 2-11-2025; Ord. No. 71746, § 19, 11-20-2023.)

4.54.200 Military leave.

The City of St. Louis will follow all applicable state and federal laws on the granting of military leave and reemployment rights.

Each employee is required to give advance notice (at least thirty (30) days prior to departure when feasible), preferably in writing, of service obligation or intention to perform services in the uniformed services, unless such notice is prevented by military necessity, as determined by a designated authority, or impossible or unreasonable under all of the circumstances.

Upon the expiration of military leave of absence, the employee shall be reinstated to the class of position he/she occupied at the time the leave was granted without breaking continuity of service. Failure of an employee to report for duty within the time pursuant to state or federal law shall be just cause for dismissal. The employee's accumulated leave balance(s) shall be restored to the employee upon his/her return.

(Ord. No. 71970, § 20, 2-11-2025; Ord. No. 71746, § 20, 11-20-2023.)

4.54.210 Education reimbursement.

A manager/supervisor may, with the prior approval of the Chief Medical Examiner, authorize salary payments, payments of tuition expenses, fees, books and related material in whole or in part to employees to permit them to attend school, visit other governmental agencies or in any approved manner to devote themselves to improvement of knowledge or skills required in the performance of the duties of their position.

The Department of Personnel may reimburse, in whole or in part, expenses incurred by employees in the pursuit of improvement of the knowledge and skills required in the performance of their positions or in higher positions, when funds have been budgeted therefore.

A manager/supervisor, with the approval of the Chief Medical Examiner, may establish a program to reimburse, in whole or in part, expenses incurred by employees in the pursuit of improvement of the knowledge and skills required in the performance of the duties of their positions or to improve their professional, technical or managerial knowledge or skill.

(Ord. No. 71970, § 21, 2-11-2025; Ord. No. 71746, § 21, 11-20-2023.)

4.54.220 Leaves of absence and family and medical leave.

An employee may request a leave of absence, or a manager/supervisor may request a leave of absence for an employee, for any reason under the City's general leave policy, or a "family/medical leave of absence" for certain qualifying reasons under provisions of "The Family and Medical Leave Act of 1993" as provided in this chapter and under additional provisions and regulations as determined by the Chief Medical Examiner.

(a) A manager/supervisor, with the approval of the Chief Medical Examiner, may grant an employee in the Medical Examiner's Office a general leave of absence without pay for a period of one (1) year, which may be extended, with the prior approval of the Chief Medical Examiner. Upon the expiration of such leave of absence, the employee shall be reinstated to the competitive position he/she occupied at the time the leave was granted provided the position is still in existence and he/she is able to perform the duties of the position. The employee shall be reinstated to the competitive position at the same relative rate in the salary range the employee occupied at the time the leave was initiated. Failure of an employee to report for duty promptly at the expiration of the leave shall be just cause for dismissal. If necessary to the efficient conduct of the business of the City, an employee on leave other than military leave or qualifying family/medical leave may be notified by the appointing authority, with the

approval of the Chief Medical Examiner, to return prior to the expiration of such leave. Failure of the employee to return within ten (10) calendar days after receipt of such notice shall terminate his/her leave of absence and be just cause for dismissal, subject to any applicable federal, state or local regulations.

(b) The City of St. Louis will follow all applicable state and federal laws on the granting of family/medical leave. The City of St. Louis will provide up to six (6) weeks of paid family/medical leave, in accordance with the City's "Family/Medical Leave Policy."

The Chief Medical Examiner shall establish additional rules, guidelines and procedures for the effective administration of the City's "Family/Medical Leave Policy." The policy shall comply with all provisions of the "Family/Medical Leave Act of 1993" and any amendments thereafter.

Employees must take all of their accrued time (sick leave, medical leave, vacation leave) prior to being placed on leave without pay status for approved Family and Medical Leave, except employees can keep one (1) week of vacation hours (if they have accrued one (1) week of vacation and are eligible to take them). Employees will be allowed to use all their compensatory time, if requested by employee.

(c) Any employee in the Medical Examiner's Office who is appointed to a position in the Medical Examiner's Office shall be granted an in-service leave without pay from the position during the term to which he/she is appointed to the position. Such leave shall be for the term of the appointment to the position and until his/her successor qualifies. Upon the expiration of the appointment to the position, the employee shall be reinstated to the position he/she occupied immediately prior to the in-service leave. The employee shall be reinstated to the position as under a temporary promotion pursuant to Section 4.54.060(a)(2) of this chapter. Employees who are returned to a position shall retain any vacation, compensatory time, sick leave, or medical leave balance in effect at the time of granting of the leave of absence for appointment to the position. Employees shall be given credit for time spent in an appointment in computing eligibility for additional vacation leave accrual.

(d) In the event that emergency conditions occur which require the closing of City-operated facilities or the temporary cessation of functions carried out by classified employees, the Mayor of the City of St. Louis may declare an emergency and require an employee or group of employees to take leaves of absence with or without pay while such emergency conditions exist. In the event that the Mayor requires that the leave of absence be without pay, an employee with vacation or accrued compensatory time may elect to take the accrued time off with pay in lieu of all or a part of such non-paid leave of absence. Such non-paid leave of absence shall not interrupt continuity of service for vacation accrual. An emergency leave of absence declared by the Mayor shall not exceed ninety (90) days.

(e) Employees who are granted general leaves of absence and other non-paid leaves of absence, except military leave, must take all accrued vacation at the start of the leave of absence.

Employees who are granted or placed on a non-paid leave of absence will not accrue vacation and medical leave during the period of non-paid leave. Upon the expiration of such leaves of absence, the employee shall follow the procedures as established in this Section 4.54.220 and any other applicable regulations and procedures as established by the Chief Medical Examiner.

(f) A manager/supervisor, with the prior approval of the Chief Medical Examiner, may put an employee on a forced leave of absence with or without pay pending the outcome of an investigation or of a pending disciplinary action against the employee. Employees being placed on forced leave may elect to be placed on either vacation leave or compensatory time.

(g) In the event that a fiscal crisis occurs in the City of St. Louis, employees may request voluntary furloughs. The Chief Medical Examiner may issue regulations to govern the furlough program.

(Ord. No. 71970, § 22, 2-11-2025; Ord. No. 71746, § 22, 11-20-2023.)

4.54.230 Insurance benefits.

The City of St. Louis is hereby authorized to devise and establish by contract or otherwise plans for life, health, medical, disability, and other insurance coverage deemed necessary for employees in the Medical Examiner's Office and other employees for the City and their dependents. The Department of Personnel shall develop and administer programs to provide for such coverage. The Director of Personnel shall confer with the Board of Estimate and Apportionment by February 1 of each year regarding coverage plans and the appropriate funding level. The Director shall then be charged with the responsibility of establishing the ap-

plicable funding level and remittance rates for the aforementioned plans and certify same to the Comptroller and Budget Director by March 1 of each year. The Director of Personnel may amend said rates as needed.
(Ord. No. 71970, § 23, 2-11-2025; Ord. No. 71746, § 23, 11-20-2023.)

4.54.240 Death benefit.

In the event any employee of the City whose pay is established by this chapter dies as a result of injuries arising out of and in the course of his/her employment by the City, the City shall pay compensation in accordance with the Missouri Workers' Compensation Law. The Chief Medical Examiner and the City Counselor shall establish procedures for making the payments required by the Missouri Workers' Compensation Law. The Comptroller shall designate the fund or appropriation out of which such payment shall be made. Such compensation shall be in addition to any life insurance benefits paid for by the City or by the employee which is available to the employee's beneficiaries and also in addition to any benefit provided by the Employees Retirement System of the City of St. Louis.
(Ord. No. 71970, § 24, 2-11-2025; Ord. No. 71746, § 24, 11-20-2023.)

4.54.250 Workers compensation and disability leave.

(a) Any employee in the Medical Examiner's Office whose class title and grade are established in Section 4.54.010(a) and denoted by the suffix "G," or "M" of this chapter, including employees who are compensated on a per performance or unit of work basis, who shall suffer personal injury by accident or occupational disease arising out of and in the regular course of employment while engaged in or about the premises where an employee's duties are being performed or where an employee's presence is required as part of his/her employment, shall promptly report such injury by accident or occupational disease to his/her immediate supervisor. The supervisor shall in turn report, through the manager/supervisor, all facts concerning the incident to the City Counselor and the Chief Medical Examiner. The manager/supervisor shall promptly provide such written information and recommendations as may be requested by the City Counselor to aid in making the determination of the period of disability. The employee who suffers a personal injury as described in part (a) of this section, and which results in temporary disability, may elect to use sick or medical leave for the first three (3) days of temporary disability. Thereafter, the employee will be compensated at the rate mandated by the Missouri Workers' Compensation Law. If the period of disability extends fourteen (14) calendar days or more, the three (3) days of sick or medical leave used during the first three (3) days of disability will be restored to the employee's sick or medical leave balance. The City Counselor shall determine the actual amount of compensation and length of time during which payments are made for such temporary disability in accordance with the Missouri Workers' Compensation Law.

(b) The City Counselor, the Chief Medical Examiner, or the manager/supervisor may require an employee to undergo a physical examination and medical or surgical treatment at the expense of the City to diagnose and treat injuries or illnesses arising out of employment.

(c) The City Counselor and the Comptroller shall establish procedures for paying compensation to employees or former employees who are permanently disabled and due compensation under the Missouri Workers' Compensation Law. The Comptroller shall designate the fund or appropriation out of which such payment shall be made.

(d) The City Counselor and the Chief Medical Examiner shall be responsible for the administration of the provisions of this Section and shall establish and publish procedural regulations for the administration of the program. Each manager/supervisor shall establish procedures to comply with the provisions of this section and established regulations.
(Ord. No. 71970, § 25, 2-11-2025; Ord. No. 71746, § 25, 11-20-2023.)

4.24.260 Jury and witness leave.

(a) Jury leave with pay shall be granted to bi-weekly rate employees working fifty (50) percent time or more for such time when such employees are serving as jurors pursuant to order of the St. Louis Circuit Court or United States District Court in St. Louis. Any bi-weekly rate employee, when so summoned for jury service, shall report such fact within seventy-two (72) hours to his/her manager/supervisor and display to the manager/supervisor the summons which the employee has received and shall give the manager/supervisor in writing the date and the time of such jury service. No bi-weekly rate employee shall receive any compensation from the Jury Commissioner or the United States

District Court system for jury service for days the employee receives compensation from the City. A bi-weekly rate employee may keep the jury stipend for days when the employee receives no compensation from the City (off days, docks, leaves, etc.). Upon being discharged from serving as a juror by the Court or Jury Commissioner, the employee shall forthwith report to his/her manager/supervisor if discharged during their normally scheduled work hours and shall submit to his/her manager/supervisor a written statement from the Jury Commissioner certifying that the employee has served as a juror and the time and date so served. The manager/supervisor shall, upon receipt of the statement of jury service, credit the employee with paid jury leave for such service.

(b) Leave with pay shall be granted to bi-weekly rate employees for such time when the employee's presence is required by the prosecutor in a criminal proceeding or grand jury procedure, a trial in prosecuting accused criminals (or for jury service in Federal Court). Any bi-weekly rate employee, when so subpoenaed as a prosecution witness or whose presence is required as a part of a grand jury inquiry, shall report such fact within seventy-two (72) hours to his/her manager/supervisor and shall give the manager/supervisor in writing the date and time his/her presence is required for such criminal prosecution. Each manager/supervisor shall establish controls to assure that any paid leave is actually required by the prosecuting authority. A manager/supervisor may require an employee to furnish satisfactory evidence of being required to be off the job and that all time off was in connection with the prosecution of the case. This procedure shall apply for employee participation in criminal prosecution in state or federal courts.

(Ord. No. 71970, § 26, 2-11-2025; Ord. No. 71746, § 26, 11-20-2023.)

4.54.270 Deferred compensation.

(a) Authority is hereby granted for the establishment of a deferred compensation plan for the City of St. Louis.

(b) In accordance with the regulations applicable to the plan, as set out herein, the Comptroller is authorized to enter into an agreement with eligible participants, whereby said participants may designate a portion of their future earnings to be deducted by the City and placed in a fund to be designated "City of St. Louis Deferred Compensation Plan Fund" for the purpose of providing tax deferred benefits to the participants upon retirement.

(c) The Board of Estimate and Apportionment is hereby authorized to establish or select a specific plan or plans in accordance with the requirements set out in this chapter. In establishing the plan, the Board of Estimate and Apportionment may elect to retain outside parties to provide administrative and/or investment services after following competitive bidding procedures. The Board of Estimate and Apportionment is authorized, after analyzing the various competitive bids submitted in accordance with the requirements of this chapter, to select the plan or plans it determines to meet the requirements established as a part of the competitive bidding procedures and to be in the best interest of the participants. No investment plan shall be considered unless offered by a duly licensed resident agent representing a company duly licensed and authorized by the State of Missouri and other applicable federal regulatory agencies to offer such insurance or investment programs.

In the event federal or state legislation is changed in a manner affecting and/or relating to any of the aforementioned Deferred Compensation provisions contained in this section, the Board of Estimate and Apportionment of the City of St. Louis may amend the deferred compensation plan accordingly and may execute any and all documents necessary to achieve and effectuate the recommended changes.

(Ord. No. 71970, § 27, 2-11-2025; Ord. No. 71746, § 27, 11-20-2023.)

4.54.280 Retirement.

The following provisions shall apply to the Employees Retirement System:

(a) "Final Average Compensation" is equal to one-half of the sum of (1) and (2) below: (1) The annual compensation received by a member for the two (2) consecutive years of creditable service in which the highest compensation was received preceding the termination of his/her employment, and (2) The balance of a member's sick leave pay on the date of retirement less sick leave hours paid to the member upon termination of his/her employment and less sick leave hours considered as creditable service for the purpose of determining eligibility for retirement benefits, except that said balance cannot exceed twenty-five (25) percent of a member's total sick leave on the date of retirement.

(b) If a member has less than two (2) consecutive years of creditable service his/her final average compensation shall be equal to the sum of (1) and (2) below, divided by (3) below and then multiplied by (4) below:

(1) The sum of monthly compensation received by the member for each consecutive month of creditable service immediately preceding the termination of his/her employment, and

(2) The balance of a member's sick leave pay on the date of retirement less sick leave hours paid to the member upon termination of his/her employment and less sick leave hours considered as creditable service for the purpose of determining eligibility for retirement benefits, except that said balance cannot exceed twenty-five (25) percent of a member's total sick leave on the date of retirement.

(3) The number of consecutive months of creditable service immediately preceding the termination of his/her employment, and

(4) Twelve (12).

The years of creditable service of a member shall be the number of years and completed months of service during which he/she receives compensation from the first day of the calendar month following the date of the beginning of each employment with an employer until his/her employment is terminated, subject to the provisions of this section. The years of creditable service of an employee hired after the operative date who had attained the age of sixty (60) years at initial employment shall be the number of years and completed months of service during which he/she receives compensation from October 1, 1988, and hereafter, from the first day on or after October 1, 1988, of the beginning of each employment with an employer until his/her employment is terminated. No creditable service shall be granted for any period of employment before October 1, 1988, after the calendar month in which the member attains age seventy (70). No creditable service for prior employment shall be granted an employee who becomes a member after April 1, 1960, unless he/she was employed by an employer on April 1, 1960. A member's sick leave balance at time of retirement less the sum of (a), (b) and (c) below shall be considered as additional creditable service for calculation of retirement benefits under any provision of this chapter:

(a) Sick leave hours considered as creditable service for the purpose of determining eligibility for retirement benefits, and

(b) Sick leave hours paid to the member upon termination of his/her employment, and

(c) Sick leave hours used in determining final average compensation.

(Ord. No. 71970, § 28, 2-11-2025; Ord. No. 71746, § 28, 11-20-2023.)

Chapter 4.60

CASHING OF PERSONAL CHECKS

Sections:

4.60.010 By City employees or officials.

4.60.020 Penalty for violation.

4.60.010 By City employees or officials.

No City employee or official or any person holding a position classified as a county officer or employee who possesses or controls any money that is received pursuant to any City ordinance, rule, regulation or by state law, rule or regulations shall use said money to cash any personal checks. (1994 C., § 4.60.010; Ord. No. 63813, § 1, 1996.)

4.60.020 Penalty for violation.

Any person that violates any provision of this section shall upon conviction be fined not less than one dollar ($1.00) or more than five hundred dollars ($500.00) or by imprisonment up to ninety (90) days or by both such fine and imprisonment. (1994 C., § 4.60.020; Ord. No. 63813, § 2, 1996.)

Chapter 4.62

PERSONAL SERVICE CONTRACTS WITH FORMER EMPLOYEES

Sections:

4.62.010 Prohibited as result of violation of Charter.

4.62.020 Null and void contracts.

4.62.010 Prohibited as result of violation of Charter.

Every department, division, or authority of the City of St. Louis is prohibited from entering into a personal service contract with any City employee who has been terminated, or who has retired or resigned from City service, as a result of said employee's violation of Article VIII, Section 2 of the Charter of the City of St. Louis. This prohibition shall remain in effect for a period of five (5) years from the date of the

termination, retirement or resignation of said employee. (1994 C., § 4.62.010; Ord. No. 63850, § 1, 1996.)

4.62.020 Null and void contracts.

Any contract for personal service between any department, division, or authority of the City of St. Louis and any City employee who has been terminated, or who has retired or resigned, as a result of said employee's violation of Article VIII, Section 2 of the Charter of the City of St. Louis, which is entered into after the effective date of the ordinance codified in this chapter and within five (5) years of the date of termination, retirement, or resignation, shall be null and void ab initio. (1994 C., § 4.62.020; Ord. No. 63850, § 2, 1996.)

Chapter 4.63

MOBILE ELECTRONIC DEVICES

Editor's Note:

Ord. No. 71900, § 1, approved October 11, 2024, amended the Code by repealing former Ch. 4.63, §§ 4.63.010—4.63.030, and adding a new Ch. 4.63. Former Ch. 4.63 pertained to cellular telephones, and derived from the Code of 1994, §§ 4.63.010—463.030; and Ord. No. 68654, adopted June 10, 2010.

Sections:

4.63.010 Definitions.

4.63.020 Issuance of Mobile Electronic Devices.

4.63.030 Implementation of Policy.

4.63.010 Definitions.

A. "Mobile Electronic Device" includes but is not limited to a device capable of text messaging, voice communication, navigation, accessing the internet or producing electronic mail.

B. "Technology Resources" is any equipment or interconnected system or subsystem of equipment that is used in the automatic acquisition, storage, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information. It includes, but is not limited to, computers, ancillary equipment, software, firmware, and similar procedures, services (including support services) and related resources.
(Ord. No. 71900, § 2, 10-11-2024.)

4.63.020 Issuance of Mobile Electronic Devices.

Employees of any City of St. Louis departments, City of St. Louis' County offices, quasi-government partner agencies that utilize City-owned or managed technology resources, must have a legitimate business need for city-provided mobile electronic devices. A department's appointing authority, or their designee, shall approve the issuance of mobile electronic devices and keep a current list of employees with mobile electronic devices along with the serial numbers of the devices. Employees must return any electronic mobile devices issued to them at the time their employment terminates. (Ord. No. 71900, § 3, 10-11-2024.)

4.63.030 Implementation of Policy.

City of St. Louis employees shall follow the most recent version of the City of St. Louis information technology acceptable use policy as drafted by the Information Technology Services Agency (current version attached to Ord. No. 71900 as Exhibit A), or its successor department, and as adopted by the Board of Estimate and Apportionment when using a city-issued mobile electronic device. The Information Technology Services Agency, or its successor department shall serve as the exclusive authority for promulgating rules regarding mobile electronic devices.
(Ord. No. 71900, § 4, 10-11-2024.)

Chapter 4.65

SALARY HISTORY OF APPLICANTS FOR EMPLOYMENT

Sections:

4.65.010 Definitions.

4.65.020 Prohibitions.

4.65.010 Definitions.

A. The following words when used in this chapter shall have the meanings ascribed to them in this section:

1. *Applicant* means any individual applying for employment with the City of St. Louis, the offices of the City's Collector of Revenue, Treasurer, Recorder of Deeds, License Collector, Circuit Attorney, Comptroller, and Sheriff, and the City's Board of Election Commissioners.

2. *Salary history* means an applicant's current or prior salary, wages, benefits, or other compensation. Salary history does not include any objective measure of an applicant's productivity such as revenue, sales, or other production reports. (Ord. No. 71095, § 1, 2-11-2020.)

4.65.020 Prohibitions.

A. Except as otherwise provided in this Section it shall be unlawful for the offices, departments, and other divisions of the City of St. Louis, the Mayor's office and Board of Aldermen, the offices of the City's Collector of Revenue, Treasurer, Recorder of Deeds, License Collector, Circuit Attorney, Comptroller, and Sheriff, and the City's Board of Election Commissioners, to:

1. Inquire about the salary history of an applicant for employment; or

2. Screen applicants for employment based on their current or prior wages, benefits, or other compensation, or salary histories, including requiring that an applicant's prior wages, benefits, or other compensation, or salary history satisfy minimum or maximum criteria; or

3. Rely on the salary history of an applicant for employment when deciding whether to make an offer of employment to an applicant, or in determining the salary, benefits, or other compensation for such applicant during the hiring process, including the negotiation of a contract for employment; or

4. Refuse to hire or otherwise disfavor, injure or retaliate against an applicant for employment for not disclosing their salary history at any time.

B. Notwithstanding subsection A of this section the offices, departments, and other divisions of the City of St. Louis, the offices of the City's Collector of Revenue, Treasurer, Recorder of Deeds, License Collector, Circuit Attorney, Comptroller, and Sheriff, and the City's Board of Election Commissioners may, without inquiring about salary history, engage in discussions with an applicant for employment about their expectations with regard to salary, benefits, and other compensation, including but not limited to unvested equity or deferred compensation that an applicant would forfeit or have cancelled by virtue of such applicant from resigning from their then current position of employment.

C. The prohibitions set forth in subsection A of this section shall not apply to:

1. Applicants for internal transfer or promotion;

2. An applicant's voluntary and unprompted disclosure of salary history information;

3. Any attempt to verify an applicant's disclosure of non-salary related information or conduct a background check, provided that if such disclosure or background check discloses the applicant's salary history, such information shall not be relied upon for purposes of determining salary, benefits or other compensation for an applicant during the hiring process, including the negotiation of a contract for employment;

4. Employee positions for which salary, benefits, or other compensation are determined pursuant to procedures for collective bargaining; and

5. Applicants previously employed with the City of St. Louis, the offices of the City's Collector of Revenue, Treasurer, Recorder of Deeds, License Collector, Circuit Attorney, Comptroller, and Sheriff, and the City's Board of Election Commissioners who are rehired within five years by their previous who are rehired by the same employer within five years of their date of termination of employment, provided that the employer already has salary history data of the applicant from their previous employment with the employer. (Ord. No. 71095, § 1, 2-11-2020.)

Chapter 4.68

BOARD OF ELECTION COMMISSIONERS EMPLOYEES

Sections:

4.68.010	**List of Classes.**
4.68.020	**Official Pay Schedule for Classification Grades.**
4.68.030	**Salary Adjustment.**
4.68.040	**Changes to the Classification Plan.**
4.68.050	**Overtime.**
4.68.060	**Holidays.**

4.68.010 List of Classes.

Pursuant to RSMo 115.045 and 115.049, the Commissioners of the Election Board (the "Commissioners") are hereby authorized to appoint and employ the following employees with bi-weekly rates, in accordance with the following classification plan, to a grade with rates established in Section 4.68.020 of this chapter:

A. Chairman of the Board of Election Commissioners . . . . . .with a grade of 1C

B. Coordinator-Absentee . . .with a grade of 12G

C. Coordinator-Registration.with a grade of 12G

D. Deputy-MCVR . . . . . .with a grade of 19M

E. Deputy-OPS . . . . . .with a grade of 19M

F. Director . . . . . .with a grade of 19M

G. Manager-ADA with a grade of 17M

H. Manager-Budget/HR/MCVR.with a grade of 17M

I. Manager-IT. . . . . .with a grade of 17M

J. Manager-PSI. . . . . .with a grade of 17M

K. Manager-Recruit/Outreach. . .with a grade of 17M

L. Member of the Board of Election Commissioners . . . . . .with a grade of 3C

M. Assistant-MCVR . . . . . .with a grade of 11G

N. Secretary of the Board of Election Commissioners . . . . . .with a grade of 2C

O. Tabulation/Voting Systems.with a grade of 13G

P. Trainer/MCVR . . . . . .with a grade of 12G

Q. Warehouse . . . . . .with a grade of 12G

(Ord. No. 71971, § 2, 2-14-2025; Ord. No. 71887, § 2, 8-14-2024; Ord. No. 71702, § 2, 7-12-2023; Ord. No. 71513, § 2, 6-16-2022; Ord. No. 71479, § 1, 3-30-2022.)

4.68.020 Official Pay Schedule for Classification Grades.

A. *General and Management Pay Schedule:* The following bi-weekly pay schedule for all pay grades denoted with the suffix "G" or "M" shall become effective beginning with the bi-weekly pay period following the effective date of this chapter:

	Grade							
Step	**9**	**10**	**11**	**12**	**13**	**15**	**17**	**19**
1	1200	1210	1222	1270	1400	1839	2421	3189
2	1218	1228	1240	1289	1421	1867	2457	3237
3	1236	1247	1259	1308	1442	1895	2494	3285
4	1255	1265	1278	1328	1464	1923	2532	3335
5	1274	1284	1297	1348	1486	1952	2570	3385
6	1293	1304	1316	1368	1508	1981	2608	3435
7	1312	1323	1336	1389	1531	2011	2647	3487
8	1332	1343	1356	1410	1554	2041	2687	3539
9	1352	1363	1377	1431	1577	2072	2727	3592
10	1372	1384	1397	1452	1601	2103	2768	3646
11	1393	1404	1418	1474	1625	2134	2810	3701
12	1414	1425	1439	1496	1649	2166	2852	3756
13	1435	1447	1461	1518	1674	2199	2895	3813
14	1456	1468	1483	1541	1699	2232	2938	3870
15	1478	1490	1505	1564	1724	2265	2982	3928
16	1500	1513	1528	1588	1750	2299	3027	3987
17	1523	1535	1551	1612	1777	2334	3072	4047
18	1546	1559	1574	1636	1803	2369	3118	4107
19	1569	1582	1598	1660	1830	2404	3165	4169
20	1592	1606	1622	1685	1858	2440	3213	4232
21	1616	1630	1646	1711	1886	2477	3261	4295
22	1640	1654	1671	1736	1914	2514	3310	4360
23	1665	1679	1696	1762	1943	2552	3359	4425
24	1690	1704	1721	1789	1972	2590	3410	4491
25	1715	1730	1747	1815	2001	2629	3461	4559
26	1741	1756	1773	1843	2031	2668	3513	4627
27	1767	1782	1800	1870	2062	2708	3565	4696
28	1794	1809	1827	1898	2093	2749	3619	4767
29	1821	1836	1854	1927	2124	2790	3673	4838
30	1848	1863	1882	1985	2156	2832	3728	4911

B. *Commissioners' Pay Schedule:* The following bi-weekly pay schedule for all pay grades denoted with the suffix "C" shall become effective beginning with the

bi-weekly pay period following the effective date of this chapter. The pay grades denoted with the suffix "C" are required by RSMo 115.035.

1. Grade 1C shall have the bi-weekly pay of $288.46;

2. Grade 2C shall have the bi-weekly pay of $288.46;

3. Grade 3C shall have the bi-weekly pay of $230.77.

(Ord. No. 71971, § 3, 2-14-2025; Ord. No. 71887, § 3, 8-14-2024; Ord. No. 71702, § 3, 7-12-2023; Ord. No. 71513, § 3, 6-16-2022; Ord. No. 71479, § 2, 3-30-2022.)

4.68.030 Salary adjustment.

A. All pay schedules established by Ordinance Number 71702 shall continue in effect until the beginning of the bi-weekly pay period effective upon passage of this chapter. Effective upon approval of the Mayor all full-time employees will receive a three (3) percent across the board increase in pay. Upon passage of this chapter an emergency clause will be in effect.

B. Salary adjustment for all employees of the Election Board shall be based on consideration of merit, equity, or success in fulfilling predetermined goals and objectives as herein provided.

C. An appointing authority shall evaluate the performance of all employees whose salary is established in Section 4.68.010 of this chapter for the purpose of salary adjustment. On or about December 1 of each year following approval of this chapter, the Directors of the Election Board shall submit to the Commissioners evaluations of all employees whose pay grades are denoted by suffixes "G" and "M". These consideration of these evaluations by the Commissioners shall be the basis for salary adjustments.

1. *Annual Merit Increase:* Any employee whose salary is established in Section 4.68.010 of this chapter shall receive an annual service rating. This service rating with the standards of performance established by the Election Board shall determine eligibility for a one-step one and one-half (1.5) percent within-range (merit) increase.

2. *Exceptional Performance of Duties:* The Commissioners may grant a within-range salary adjustment in any whole dollar increment up to a ten (10) percent increase of an employee's bi-weekly base. The Commissioners may increase the salary of an employee who demonstrates exceptional performance of duties after serving twenty-six (26) weeks of employment at the same rate in the salary range by not more than ten (10) percent or the closest step in the pay range which provides for not more than a ten (10) percent increase. This increase may be in addition to any merit increase received.

3. *Substandard Performance of Duties:* The Commissioners may reduce the salary of an employee whose level of performance or assigned duties is significantly diminished and no longer warrants payment at the employee's range set forth in Section 4.68.010 of this chapter. The pay of any employee may be decreased as a disciplinary action at the discretion of the Commissioners. Any such decrease shall be made in accordance with established Election Board disciplinary procedures. The decrease shall not be greater than fifteen (15) percent of the current salary range. The decrease may be below the minimum pay range for the class. At the discretion of the Commissioners, a salary decrease may be made for a specific number of bi-weekly pay periods or for an undetermined time.

D. The granting of any salary increase or decrease shall be made at the beginning of a payroll period.

E. This chapter serves as notice required by RSMo 115.049, to the President of the Board of Aldermen and members of the Board of Estimate and Apportionment that upon approval and implementation of the yearly budget of the City of St. Louis, the Election Board is authorized to increase compensation of Election Board employees as provided by the budget.

(Ord. No. 71971, § 4, 2-14-2025; Ord. No. 71887, § 4, 8-14-2024; Ord. No. 71702, § 4, 7-12-2023; Ord. No. 71513, § 4, 6-16-2022; Ord. No. 71479, § 3, 3-30-2022.)

4.68.040 Changes to the classification plan.

Whenever the Election Board finds it necessary to add a new class or change the pay schedule or grade of an existing class, the Election Board shall allocate the class to the appropriate grade and schedule or make such amendment to the existing class and notify the Board of Aldermen of this action.

(Ord. No. 71971, § 5, 2-14-2025; Ord. No. 71887, § 5, 8-14-2024; Ord. No. 71702, § 5, 7-12-2023; Ord. No. 71513, § 5, 6-16-2022; Ord. No. 71479, § 4, 3-30-2022.)

4.68.050 Overtime.

Pay grades denoted with the suffix "M" are exempt from overtime compensation. Pay grades denoted with

the suffix "G" are non-exempt classes that receive overtime compensation at the one and one-half times (1.5×) rate.
(Ord. No. 71971, § 6, 2-14-2025; Ord. No. 71887, § 6, 8-14-2024; Ord. No. 71702, § 6, 7-12-2023; Ord. No. 71513, § 6, 6-16-2022; Ord. No. 71479, § 5, 3-30-2022.)

4.68.060 Holidays.

A. The Election Board shall grant holiday leave with pay, holiday pay, or compensatory holiday time off in lieu of pay to employees working full-time who are paid a bi-weekly rate on the following designated holidays as observed by the State of Missouri:

1. New Year's Day
2. Rev. Martin Luther King, Jr. Day
3. Lincoln's Birthday
4. Presidents' Day
5. Truman Day
6. Memorial Day
7. Juneteenth Day
8. Independence Day
9. Labor Day
10. Indigenous People's Day
11. Veteran's Day
12. Thanksgiving Day
13. Day after Thanksgiving Day
14. Christmas Day

B. The Election Board shall not grant holiday leave with pay, holiday pay, or compensatory holiday time off except as provided in this Section 4.68.060. Employees working full time and paid a bi-weekly rate whose pay is established in this chapter shall receive leave with pay or compensatory time off in lieu of pay as holiday compensation in an amount that is proportionate to the number of hours the employee is regularly scheduled to work in a day.

C. When the day of observance of a holiday is changed by State or Federal law, it will be so observed by the City of St. Louis. When the day of observance of a holiday is changed by State or Federal executive action, the Mayor shall determine the day of observance by the City of St. Louis. When the date of observance is determined by State law, the Election Board shall observe the date determined by the State. When one of the above enumerated holidays occurs on Sunday, the following Monday shall be observed as the holiday. When one of the above holidays occurs on Saturday, the preceding Friday shall be observed as the holiday.

D. The Election Board shall determine the manner of granting holidays. When full-time employees are required to work on a holiday they shall be entitled to compensation for the holiday and the hours actually worked. Compensation for the holiday shall be in an amount proportionate to the number of hours an employee is regularly scheduled to work in a day.
(Ord. No. 71971, § 7, 2-14-2025; Ord. No. 71887, § 7, 8-14-2024; Ord. No. 71702, § 7, 7-12-2023; Ord. No. 71513, § 7, 6-16-2022; Ord. No. 71479, § 6, 3-30-2022.)

Chapter 4.70

RETENTION OF EMPLOYEES PERFORMING JANITORIAL AND SECURITY SERVICES

Sections:

4.70.010	**Definitions.**
4.70.020	**Protection for janitorial and security services employees.**
4.70.030	**Exemptions.**
4.70.040	**Violations.**
4.70.050	**Outsourcing of services by the City, and/or City agency.**
4.70.060	**Retention by the City and/or City agency.**

4.70.010 Definitions.

The terms used in this chapter are defined as follows:

(a) *City* shall mean the City of St. Louis.

(b) *City agency* shall have the same meaning as used Section 3.99.010(C) of the Revised Code of the City of St. Louis, 2020.

(c) *Former contractor* shall mean any individual, proprietorship, partnership, corporation, trust, association, or other entity furnishing janitorial and security services pursuant to a service contract for janitorial and security services prior to termination or ending of such contract.

(d) *Former subcontractor* shall mean any individual, proprietorship, partnership, corporation, trust, association, or other entity that performs janitorial and security services for a former contractor furnishing janitorial and security services pursuant to a service contract for janitorial and security services prior to termination or ending of such contract.

(e) *Janitorial and security services* shall mean work performed in connection with the care, maintenance, or security of a building or property and includes, but is

not limited to, work performed by a watchman, security officer, door staff, building cleaner, handyman, janitor, elevator operator, window cleaner, and/or groundskeeper.

(f) *Janitorial and security services employee* shall mean any person hired or employed by a former contractor or a former subcontractor to perform janitorial and security services under a service contract for janitorial and security services, who has been regularly assigned to a work under such contract for at least twenty-five (25) days immediately preceding any transition in employment subject to this chapter, except for (i) persons who are managerial, supervisory, or confidential employees (ii) persons regularly scheduled to work fewer than four (4) hours per week under such contract.

(g) *Service contract for janitorial and security services* shall mean any contract with the City and/or City agency, for the furnishing of janitorial and/or security services to the City and/or City agency, and includes any subcontract for such services.

(h) *Successor contractor* shall mean any individual, proprietorship, partnership, corporation, trust, association, or other entity that has been awarded a service contract for janitorial and security services to provide, in whole or in part, janitorial and security services that are substantially similar to those provided under a terminated or ended service contract for janitorial and security services within the previous ninety (90) days. Successor contractor shall also include any subcontractor that performs janitorial and security services for such successor contractor.
(Ord. No. 71769, § 1, 12-26-2023.)

4.70.020 Protection for janitorial and security services employees.

(a) Not less than twenty-five (25) calendar days before the termination or ending of a service contract for janitorial and security services, the former contractor shall provide the successor contractor a full and accurate list containing the name, address, date of hire, hourly rate of pay, employment classification, and if applicable the union seniority date, of each janitorial and security services employee currently employed by the former contractor and any former subcontractor at the affected site(s) for performance of such service contract. At the same time, the former contractor shall provide to each janitorial and security services employee, currently employed by the former contractor or any former subcontractor, a written notice of their rights under this chapter and post such notice in the same location and manner that other statutorily required notices to employees are posted in the affected building(s). The former contractor shall also provide at the same time such list and notice to the employee's collective bargaining representative, if any. The former contractor shall also provide at the same time such list and notice to the City and/or City agency. In the event a successor contractor has not been awarded a service contract yet, the City and/or City agency shall forward the list to all bidders as soon as practicable.

(b) Upon termination or ending of a service contract for janitorial and security services, any successor contractor shall retain for a ninety-day transition employment period those janitorial and security services employees employed by the former contractor and any former subcontractor at the affected site(s) to perform the terminated or ended service contract. The City and/or City agency will give notice of this requirement to the successor contractor as soon as practicable, but the failure to provide such notice does not relieve the successor contractor of its obligations under this chapter.

(c) If at any time the successor contractor determines that fewer janitorial and security services employees are required to perform such services at the affected sites than had been performing such services by the former contractor and any former subcontractor, the successor employer shall retain the janitorial and security services employees by seniority within job classification; provided that during the ninety-day transition period, the successor contractor shall maintain a preferential hiring list of those janitorial and security services employees not retained at the building(s) who shall be given a right of first refusal to any jobs within their classification that becomes available during that period. The successor contractor shall also give notice of the layoff under this paragraph, including the name of any affected employee and date of layoff, to the employee's former collective bargaining representative, if any, the employee's current collective bargaining representative, if any, and to the City and/or City agency.

(d) Except as provided in paragraph (c), during the ninety-day transition period, the successor contractor shall not discharge without cause a janitorial and security services employee retained pursuant to this chapter. In the event an employee is discharged, the successor contractor shall give notice of that discharge,

including the name of the employee, the date of discharge, and reason for discharge, to the employee's former collective bargaining representative, if any, to the employee's current collective bargaining representative, if any, and to the City and/or City agency.

(e) At the end of the ninety-day transition period, the successor contractor shall perform a written performance evaluation for each janitorial and security services employee retained pursuant this chapter. If such performance evaluation is satisfactory, the successor contractor shall offer such continued employment under the terms and conditions established by the successor contractor or as required by law.

(f) Nothing in this chapter shall restrict a former or successor contractor or subcontractor from obtaining a background check on an employee as may be required by a federal or state law or by local ordinance or from requiring that an employee undergo appropriate testing and investigation consistent with the employer's personnel policies.

(g) In the event that a successor contractor or subcontractor violates the provisions of Subsections (c), (d) or (e) of this section, it shall be deemed a separate violation of this chapter for each employee covered by the chapter that is deprived of the benefit of the subsection by reason of the violation.
(Ord. No. 71769, § 2, 12-26-2023.)

4.70.030 Exemptions.

The provisions of this chapter do not apply:

(a) To any successor contractor that, on or before, the effective date or termination or ending of a service contract for janitorial and security services, agrees to assume or to be bound by the collective bargaining agreement of the former contractor or subcontractor and agrees to retain the janitorial and security services employees, provided that such collective bargaining agreement provides terms and conditions for the discharge and laying off of employees.

(b) If there is no collective bargaining agreement as described in paragraph (a), to any successor contractor that, on or before the effective date of the termination or ending of the service contract for janitorial and security services, agrees to enter into a new collective bargaining agreement covering the janitorial and security services employees and agrees to retain the janitorial and security services employees, provided that the collective bargaining agreement provides terms and conditions for the discharge and laying off of employees;

(c) To any successor contractor of which the janitorial and security services employees will be accreted to a bargaining unit with a pre-existing collective bargaining agreement and agrees to retain the janitorial and security services employees, provided that the collective bargaining agreement provides terms and conditions for the discharge and laying off of employees;

(d) To any former contractor or former subcontractor that obtains a written commitment from a successor contractor that the janitorial and security services employees will be covered by a collective bargaining agreement falling within paragraphs (a) through (c) and agrees to retain the janitorial and security services employees.
(Ord. No. 71769, § 3, 12-26-2023.)

4.70.040 Violations.

The failure to meet the requirements of this chapter shall be punishable by a fine of not more than five hundred dollars ($500.00). In addition, any former or successor contractor or subcontractor in violation of the provisions of this chapter may be subject to debarment under City ordinances, following the procedures set forth for an action to debar.
(Ord. No. 71769, § 4, 12-26-2023.)

4.70.050 Outsourcing of services by the City, and/or City agency.

In the event the City and/or City agency outsources janitorial and security services being performed by employees of the City and/or City agency, then in addition to other requirements of bidders for such a service contract, it shall be a requirement for the contractor awarded the service contract to follow and abide by the provisions of Section 4.70.020(b) through (f) on retention of employees as applicable to those employees. The City and/or City agency shall make this requirement a provision of the contract with the contractor. The City and/or City agency will provide a list of current employees performing the janitorial and security services at issue to the successor contractor.
(Ord. No. 71769, § 5, 12-26-2023.)

4.70.060 Retention by the City and/or City agency.

In the event the City and/or City agency determines to have its employees perform janitorial and

security services that had been performed by contractor or subcontractor pursuant to a terminated or ended service contract for such services, the City and/or City agency shall to the fullest extent allowed by law, the Charter, and ordinances, seek to retain the janitorial and security services employees employed by the former contractor or subcontractor. This section does not prevent the City and/or City agency from following and applying existing ordinances and rules relating to its employment of employees.
(Ord. No. 71769, § 1, 12-26-2023.)

Title 5

REVENUE AND FINANCE

For business, merchant and manufacturer taxes, see Title 8.

Constitution:

Art. 10 Taxation

Art. 6 § 23 *et seq.* Local finances

Chapters:

5.02 Department of Finance

5.04 Comptroller

5.06 Assessment Division

5.08 Collection Division

5.10 Treasury Division

5.12 City Depositories

5.14 Budget

5.16 Fiscal Reports

5.18 Audit and Accounting

5.19 Aldermanic Expenses

5.20 Commissions for City Real Estate Sales

5.22 Earnings Tax

5.23 Payroll Expense Tax

5.24 Sales Tax

5.25 Public Transit Sales Tax

5.26 Property Tax

5.28 Revenue Bonds

5.30 Waterworks Bonds

5.34 Hospital Fund

5.35 Capital Fund

5.36 Convention, Exhibition and Community Center Fund

5.38 Improved Wharf Fund

5.40 Hospital Revenue Fund

5.42 Mayor's Contingent Fund

5.44 Pay Period Reserve Fund

5.46 Municipal Bridge Fund

5.48 Transportation Trust Fund

5.50 Street Improvement Fund

5.52 Urban Redevelopment and Neighborhood Rehabilitation Fund

5.53 Victims of Domestic Violence Fund

5.54 Warrants

5.56 Supply Division

5.58 Supply Purchase Procedures

5.59 St. Louis Hope for the Homeless Fund

5.60 Sale of Surplus and Condemned Property

5.62 Multigraph and Stores Section

5.64 Standardization Board

5.66 Marriage License Fees

5.68 Employee Fee and Supplemental Sales Tax

5.70 Real Estate Title Conveyance

5.72 Park Capital Improvements Fund Apportionment

5.74 Use of Park Funds

5.76 "Round Up" Program Funds

5.78 Street Excavation Restoration Program Fund

5.80 Reserved

5.82 Reserved

5.85 Fund 1116 Downtown Vending District Parks Fund

5.90 Public Art Trust Fund

5.92 Big Brothers Big Sisters of Eastern Missouri Fund

5.95 Pet Spay, Neuter and Microchip Assistance Fund

5.98 Fund 1116 Metro Trash Services Fund

5.100 The Reparations Fund and The Midwest Land Development Fund

5.102 Domestic Violence Prevention and Family Support Fund

5.104 Property Tax Credit for Eligible Senior Taxpayers

Chapter 5.02

DEPARTMENT OF FINANCE

Sections:

5.02.010 Divisions established.

5.02.020 Division of Audit and Accounting.

5.02.030 Division of Municipal Investigation and Statistics.

5.02.040 Division for Collection of Miscellaneous Revenue.

5.02.050 Division of Special Taxes, Street Openings and Collections.

5.02.060 Division of Business Tax Index.

5.02.010 Divisions established.

The Department of Finance shall consist, in addition to the divisions created by Charter, of the Comptroller's main office and the following additional divisions:

A. Division of Audit and Accounting;

B. Division of Municipal Investigation and Statistics;

C. Division for the Collection of Miscellaneous Revenue;

D. Division of Special Taxes, Street Openings and Collections;

E. Division of Business Tax Index. (1948 C., Ch. 23, § 1; 1960 C., § 120.010; 1994 C., § 5.02.010; Ord. No. 49092, § 1, 1958.)

Charter:

Art. XV Department of finance

City Counselor Ops.: 9401

5.02.020 Division of Audit and Accounting.

The Division of Audit and Accounting shall examine and audit all payrolls, accounts, claims and demands against the City for the payment of which money may be drawn from the City Treasury and for which appropriation has been made with the approval of the Board of Estimate and Apportionment. It shall examine the accounts of the Treasurer and at least monthly verify the cash on hand and in banks. It shall examine and adjust the accounts of all officers or employees who receive or collect City revenue, doing so as often as the Comptroller may think proper or the City's interest may require, and such examination shall be made at least monthly. It shall examine the accounts of constables and clerks of magistrates and the Clerk of the City Courts and dockets of such courts and of the magistrates and of the Divisions of the Court of Criminal Correction and the Circuit Court (both civil and criminal divisions), to the end that the fees and costs accruing therein and belonging to the City shall be promptly paid into the City Treasury. It shall examine the accounts of the Sheriff and ascertain the amounts of fees collected and the expenses authorized. It shall draw warrants on the Treasurer in payment of all payrolls, accounts, claims, demands and the like charged against such payrolls, collections, claims, demands or the like. The Comptroller may designate in the manner required by Section 3, Article XV of the Charter any Deputy or Assistant Comptroller or employee in his department to draw warrants upon the Treasurer with the same effect as if signed by the Comptroller, the designation to be in writing, in duplicate, filed with the Mayor and in the Treasury Division of the Comptroller's Department. (1948 C., Ch. 23, § 3; 1960 C., § 120.020; 1994 C., § 5.02.020.)

For fiscal reports, see § 5.16.020

For procedures, see Ch. 5.18

5.02.030 Division of Municipal Investigation and Statistics.

The Division of Municipal Investigation and Statistics shall procure and furnish statistical information as the Comptroller or Board of Estimate and Apportionment or Board of Aldermen may require and shall make investigation as directed by the Comptroller relative to the collection or noncollection of the City's revenue and the methods employed enabling the verification of the delivery and use of supplies purchased for the various departments of the City government and for the needs of its eleemosynary and correctional institutions and shall assist in devising and installing a system or procedure as will establish to the satisfaction of the Comptroller that the supplies paid for by the City are received and properly utilized and that services paid for by the City are actually rendered. This Division shall keep a record of all surety bonds given to the City by its officers and employees, of all bonds given or relating to public work, and all policies of insurance relating to City property and expirations thereof, and shall also determine the location of space to be occupied under leases entered into with the City for the use

of its wharf or harbor. (1948 C., Ch. 23, § 4; 1960 C., § 120.030; 1994 C., § 5.02.030.)

5.02.040 Division for Collection of Miscellaneous Revenue.

The Division for the Collection of Miscellaneous Revenue shall collect all the revenue accruing from franchise taxes, rents and interest on bonds and mortgages, interest accruing on the City's deposits in banks or trust companies, and revenue arising from the use or sale of property belonging to or managed by the City. It

shall collect fees for licenses for the use of the City's wharf and harbor and for the use of any of the facilities connected with the City markets for which a charge is made. It shall collect rental for the temporary use or occupation of property acquired by the City for public purposes between the time of acquisition and the time the property is actually utilized for the purposes for which it was acquired. It shall collect also all other incidental revenue accruing to the City the collection whereof is not otherwise provided for by law, the Charter or ordinance. (1948 C., Ch. 23, § 5; 1960 C., § 120.040; 1994 C., § 5.02.040.)

5.02.050 Division of Special Taxes, Street Openings and Collections.

The duties of the Division of Special Taxes, Street Openings and Collections shall be to register and certify all special tax bills issued in payment for public works; to record all judgments of the courts in the opening of streets or alleys or in condemnation of property taken for public purposes or used; to collect the amount of benefits in such openings or condemnations and daily pay same into the City Treasury; and daily to furnish to the City Counselor a list of such collections, in order that judgment entered therefor may be released on the court records. (1948 C., Ch. 23, § 6; 1960 C., § 120.050; 1994 C., § 5.02.050.)

5.02.060 Division of Business Tax Index.

The Division of Business Tax Index shall compile and maintain a central business index and file for all persons, firms, companies, corporations, partnerships and associations engaged in any business, trade, occupation, service, calling or profession and subject to license or tax for local revenue purposes in the City. Copies or records of personal property tax returns, earnings tax returns, merchant's and manufacturer's license tax returns, and other tax or license data returned by or pertaining to the persons, firms, companies, corporations, partnerships and associations indexed shall be maintained in permanent files in the Division until otherwise provided by ordinance. The Division shall have authority to compare and analyze data submitted or collected for filing, to make investigations to determine the adequacy of reported values for tax or license purposes, and to audit or direct the audit of returns. The Division may direct the Assessor, Collector of Revenue, License Collector, or other official receiving or having custody of the tax or license returns above described to review any such return for the purpose of establishing equalized valuations, to investigate any failure to file a return, to make a field audit of the accuracy of any return, and to proceed with such legal action as may be required under existing law to establish the correctness of any return.

The Assessor, Collector of Revenue, License Collector or other official receiving or having custody of the returns described in this section shall transmit a copy of each return to the Division of Business Tax Index for its permanent file, or, if approved by the Comptroller, shall submit a record of the return in sufficient detail to enable the Division to perform its duties under this section. Every such official shall observe the proper directions of the Division issued under this section to facilitate the collection of the revenue of the City. (1948 C., Ch. 23, § 6(a, b); 1960 C., § 120.060; 1994 C., § 5.02.060; Ord. No. 49092, §§ 2, 3, 1958.)

For business, merchant and manufacturer taxes, see Title 8.

Chapter 5.04

COMPTROLLER

Charter:

Art. XV § 2 Comptroller

Sections:

5.04.010 Appointment of officers and employees.

5.04.020 Deputy Comptroller.

5.04.030 First and Second Assistant Comptroller.

5.04.040 Use of Acting Comptroller title.

5.04.050 Countersignature of Comptroller to special tax bills—Designation—Filing.

5.04.060 Countersignature of Comptroller to special tax bills—Designation—Revocation.

5.04.070 Employment of experts.

5.04.080 Accounting control over assessments.

5.04.090 Leasing City property.

5.04.100 Auditor of Sheriff's Office.

5.04.110 Bond Clerk—Assistant Bond Clerk.

5.04.120 Contingent fund.

5.04.130 Contingent fund report—Required.

5.04.140 Contingent fund report—Filing—City Register.

5.04.150 License Collector duties—Transference.

5.04.010 Appointment of officers and employees.

The Comptroller shall appoint in accordance with the Charter and ordinances of the City all officers and employees in his main office and in the divisions created by Section 5.02.010. The officers and employees shall in addition to their regular work perform duties as assigned to them by the Comptroller.

The Comptroller shall appoint, in accordance with the Charter and the ordinances of the City, one Deputy Comptroller, one Budget Director, one First Assistant Comptroller, one Second Assistant Comptroller, one Supervising Accountant and Statistician, one Division Head, two Assistant Division Heads and employees as necessary to perform the work of the department. (1948 C., Ch. 23, §§ 2, 15; 1960 C., §§ 121.010, 121.100; 1994 C., § 5.04.010.)

5.04.020 Deputy Comptroller.

The Deputy Comptroller shall perform all the duties assigned to him by the Comptroller and shall in the case of the absence or sickness of the Comptroller perform all duties of the Comptroller. He shall give a bond to the City in the sum of fifty thousand dollars ($50,000.00). (1948 C., Ch. 23, § 7; 1960 C., § 121.020; 1994 C., § 5.04.020.)

Charter:

Art. XV § 3 Designation of subordinate to affix the Comptroller's signature.

5.04.030 First and Second Assistant Comptroller.

The First Assistant Comptroller and the Second Assistant Comptroller shall perform duties as the Comptroller may direct. The First Assistant Comptroller in the case of the absence or sickness of the Comptroller and Deputy Comptroller shall perform all the duties of the Comptroller. The Second Assistant Comptroller shall in like manner perform all the duties of the Comptroller in the case of the absence or sickness of the Comptroller and Deputy Comptroller and First Assistant Comptroller. (1948 C., Ch. 23, § 8; 1960 C., § 121.030; 1994 C., § 5.04.030.)

5.04.040 Use of Acting Comptroller title.

When performing the duties of Comptroller, the Deputy Comptroller, the First Assistant Comptroller, and Second Assistant Comptroller shall designate themselves respectively as Acting Comptroller. (1948 C., Ch. 23, § 9; 1960 C. 121.040; 1994 C., § 5.04.040.)

5.04.050 Countersignature of Comptroller to special tax bills—Designation—Filing.

The Comptroller is authorized to designate any person in his department to countersign his name to special tax bills issued under the authority of law or ordinance. Such designation shall be in writing and on the same sheet of paper therewith. Each person so designated shall write the signature of the Comptroller in the form in which he will so countersign special tax bills. Such written designation shall then be filed in the office of the Register and thereafter the Comptroller shall have adopted as his own such signature to any special tax bills so countersigned. (1948 C., Ch. 23, § 10; 1960 C., § 121.050; 1994 C., § 5.04.050.)

5.04.060 Countersignature of Comptroller to special tax bills—Designation—Revocation.

The Comptroller may, at any time, in writing filed in the office of the Register, revoke any designation made by him under the authority of this chapter, and may designate any other assistant or clerk or subordinate to countersign special tax bills as provided in Section 5.04.050. (1948 C., Ch. 23, § 11; 1960 C., § 121.060; 1994 C., § 5.04.060.)

5.04.070 Employment of experts.

The Comptroller is authorized and directed to employ experts, bookkeepers, accountants, clerks and other help as necessary to have a thorough investigation made of the systems of accounting in use by other municipal corporations and of the methods of accounting now used in the municipal departments of the City and to install new systems or make change in the present systems in the departments of the City as he may deem advisable after investigation. (1948 C., Ch. 23, § 12; 1960 C., § 121.070; 1994 C., § 5.04.070.)

5.04.080 Accounting control over assessments.

The Comptroller is authorized to install a method that will give his department accounting control over the assessment of property and the making out of tax bills therefor that will effectively prevent the occurrence of errors or omissions in the registration of assessments or in the making out of tax bills, to employ a firm of public accountants to install the method under supervision of the Comptroller and to procure supplies necessary to complete installation and control. (1948 C., Ch. 23, § 13; 1960 C., § 121.080; 1994 C., § 5.04.080.)

5.04.090 Leasing City property.

The Comptroller is authorized, with the approval of the Board of Estimate and Apportionment, to lease any property of the City, not immediately needed for municipal purposes, for a term not to exceed five years, at a rental as fixed by the Board of Estimate and Apportionment. (1948 C., Ch. 23, § 14; 1960 C., § 121.090; 1994 C., § 5.04.090.)

For provisions for leases, see § 15.20.010.

City Counselor Ops.: 8096, 8134, 8431, 8592, 8748, 9020, 9076, 9746, 9881

5.04.100 Auditor of Sheriff's Office.

The Comptroller is authorized and directed to employ an auditor whose duties shall be primarily to check and verify the books of record and of accounts of the Sheriff of the City and to render other services as required of him. (1948 C., Ch. 23, § 16; 1960 C., § 121.110; 1994 C., § 5.04.100.)

5.04.110 Bond Clerk—Assistant Bond Clerk.

The Comptroller is authorized to employ a Bond Clerk and an Assistant Bond Clerk. The Bond Clerk shall be employed in the preparation of, sale and delivery of bonds, and in recording bond sales, payment of accruing interest and maturing bonds, and other work assigned to him by the Comptroller. The Assistant Bond Clerk must be a stenographer whose duty it shall be to attend all meetings of the bond committee, take notes of the proceedings thereof, and transcribe same for information of the departments and officials of the City concerned. He shall do other work as assigned to him by the Comptroller. (1948 C., Ch. 23, § 17; 1960 C., § 121.120; 1994 C., § 5.04.110.)

5.04.120 Contingent fund.

There shall be appropriated and set aside annually out of general municipal revenue the sum of fifteen thousand dollars ($15,000.00) to be used by the Comptroller as a contingent fund. The fund shall be used by the Comptroller at his or her discretion. The Comptroller shall make a report to the City Register for the use of the fund in the aggregate amounts for each of the following categories:

A. Civic and charitable contributions;

B. Memberships;

C. Comptroller's Office miscellaneous expenses;

D. Flowers and gifts;

E. Entertainment, lobbying and other business related activities;

F. Personal. (1960 C., § 121.130; 1994 C., § 5.04.120; Ord. No. 61088, § 1, 1988; Ord. No. 55653, § 1, 1970; Ord. No. 49048, § 1, 1958.)

5.04.130 Contingent fund report—Required.

The Comptroller's obligation to file said report as called for in Section 5.04.120 shall be construed as mandatory, and shall be considered and construed to be a condition precedent to drawing any funds against the following fiscal year's contingency fund, whether said following year's contingency fund has been approved by the passage of an approved budget for the City, of which said contingency fund shall be a part, or whether the contingency fund is merely proposed and the City is operating under the authority of a continuing resolution. (1994 C., § 5.04.130; Ord. No. 61088, § 2, 1988.)

5.04.140 Contingent fund report—Filing—City Register.

Such report shall be kept by the City Register and shall be available to the public upon request. The City Register shall certify to the Comptroller that the Comptroller has complied with the provisions as set forth in Sections 5.04.120 and 5.04.130. The report shall be filed with the City Register on April 16 of each year or the next business day thereafter. (1994 C., § 5.04.140; Ord. No. 61088, § 3, 1988.)

5.04.150 License Collector duties—Transference.

A. All responsibilities, duties, obligations for the collection of municipal taxes, fees and disbursement of taxes and fees collected that have heretofore been performed by the License Collector shall be transferred to the Comptroller of the City. The Comptroller is hereby authorized and directed to enter into an agreement with the Collector of Revenue to perform the function of collecting amounts for license taxes and fees.

B. Subsection A shall not apply to actual issuance of licenses or the processing of tax reports for the declaration of payment of taxes on machinery and tools of merchant and manufacturers as required by RSMo Ch. 150. (1994 C., § 5.04.150; Ord. No. 61395, §§ 1, 2, 1989.)

Chapter 5.06

ASSESSMENT DIVISION

For accounting control over assessments, see § 5.04.080.

For procedures allowing the office of the Assessor to comply with state statutes relating to postponed assessments of deferred maintenance improvements, see §§ 5.26.100—5.26.140.

Charter:

Art. XV § 4 et seq. Assessment Division

Sections:

5.06.010 **District Deputy Assessors—Personal property tax assessment differences.**

5.06.020 **Employee appointments and bonds.**

5.06.030 **Clerks to act as deputies.**

5.06.040 **Assessment districts.**

5.06.050 **Chief Deputy Assessor.**

5.06.060 **District Deputy Assessor duties.**

5.06.070 **Architect and practical builder.**

5.06.080 **Board of Equalization payroll.**

5.06.090 **Payroll.**

5.06.100 **Appeals to Board of Equalization.**

5.06.110 **Tax levy annually.**

5.06.120 **Records showing basis of valuation.**

5.06.130 **Uniform standard unit value.**

5.06.140 **Depth table for lots varying from standard unit foot.**

5.06.150 **Corner influence table.**

5.06.160 **Unit value maps.**

5.06.170 **City block maps or plats.**

5.06.180 **Manual—Building classification—Lot sizes.**

5.06.190 **Manual—Corner influence rules.**

5.06.200 **Manual—Value explanations.**

5.06.210 **Field men to have manuals.**

5.06.220 **Field record cards—Use.**

5.06.230 **Field record cards—Contents.**

5.06.240 **Field record cards—Transfer of information.**

5.06.250 **Determination of true building value.**

5.06.260 **Uniform assessment system.**

5.06.270 **Comptroller's duties.**

5.06.280 **Assessor empowered to modify system.**

5.06.010 District Deputy Assessors—Personal property tax assessment differences.

All District Deputy Assessors shall be under the control of and obey all orders emanating from the Assessor, and in addition to all other duties prescribed by the Charter and ordinances shall, after the first day of January in each year, and until the adjournment of the Board of Equalization examine the personal returns made by the taxpayers and other data. Should there be a material difference in the values of personal property as stated by the property holder and the District Deputy Assessor, it shall be the duty of the District Deputy Assessor to notify the owner that the difference exists and that the owner may be heard, giving time and place of the hearing, with the object in view of a more efficient and complete assessment. Should no agreement be reached between the owner and the District Deputy Assessor, or should the owner fail to appear before the District Deputy Assessor, then it shall be the duty of the District Deputy Assessor to notify the Board of Equalization in writing, that the owner has failed to make a proper return, and in the notice shall state the nature of the discrepancy. (1948 C., Ch. 23, § 61; 1960 C., § 126.010; 1994 C., § 5.06.010.)

City Counselor Ops.: 8901

5.06.020 Employee appointments and bonds.

The Assessor is authorized to appoint, in accordance with the Charter and ordinances of the City, one Chief Deputy Assessor, the number of Deputy Assessors and clerks as necessary, one valuation engineer, an architect, who shall be a practical builder and who shall be employed during the session of the Board of Equalization, and other assistants as necessary for the proper performance of the duties of his office. The Chief Deputy Assessor shall give bond in the sum of five thousand dollars ($5,000.00). The valuation engineer shall give bond in the sum of four thousand dollars ($4,000.00). (1948 C., Ch. 23, § 62; 1960 C., § 126.020; 1994 C., § 5.06.020.)

5.06.030 Clerks to act as deputies.

The Assessor may authorize clerks as necessary to act as deputies to take personal returns and administer oaths to the same, but they shall receive no additional compensation while so acting. (1948 C., Ch. 23, § 63; 1960 C., § 126.030; 1994 C., § 5.06.030.)

5.06.040 Assessment districts.

For the more convenient assessment of all taxable property, real and personal, within the City in the

manner provided by law, the Assessor shall divide the City into suitable assessment districts and shall assign a district Assessor to each, and shall have power, as necessity or convenience requires, to alter and change the districts and to add thereto and to redivide the City into such districts, and shall likewise have power to change the assignments of District Deputy Assessors and to require any District Deputy Assessor to perform duties in other than their respective districts or elsewhere within the Assessment Division. (1948 C., Ch. 23, § 64; 1960 C., § 126.040; 1994 C., § 5.06.040.)

5.06.050 Chief Deputy Assessor.

The Chief Deputy Assessor shall be in all respects qualified by attainments and experience to conduct the operations of the Assessment Division and shall perform all duties of the Assessor during the absence of the Assessor from the office. (1948 C., Ch. 23, § 65; 1960 C., § 126.050; 1994 C., § 5.06.050.)

5.06.060 District Deputy Assessor duties.

It shall be the duty of the District Deputy Assessors to assess the property within the districts to which they are respectively assigned. They shall commence their assessment on the first day of June in each year and complete the same and make their final report to the Assessor on or before the first day of January next following. Each District Deputy Assessor shall enter the valuation of land and improvements against each lot or parcel of ground on his file plats and on the Assessor's Office plats in a different colored ink for each year's assessment. (1948 C., Ch. 23, § 66; 1960 C., § 126.060; 1994 C., § 5.06.060.)

5.06.070 Architect and practical builder.

The architect and practical builder shall possess the qualifications of a member of the Board of Equalization and be experienced as an architect and practical builder of public and private edifices, and before entering on his duties he shall take and subscribe to an oath before the Register that he will faithfully and impartially estimate the cash value of each building referred to him by the board. He shall be in attendance every day during the session of the board except when absent on duty in reference to matters referred to him. (1948 C., Ch. 23, § 67; 1960 C., § 126.070; 1994 C., § 5.06.070.)

5.06.080 Board of Equalization payroll.

Immediately after the final adjournment of the Board of Equalization in each year the Assessor shall make out and certify a payroll and state therein the number of days actually served by each member of the board and the number of days served by its architect and practical builder, and the total amount each of them is entitled to receive as compensation in full for their services. He shall send the payroll to the Comptroller, who shall draw his warrant on the Treasurer for the amount and charge it to the account of the Assessment Division. (1948 C., Ch. 23, § 68; 1960 C., § 126.080; 1994 C., § 5.06.080.)

5.06.090 Payroll.

The Assessor shall certify to the Comptroller the payrolls of his division, whereupon the Comptroller shall draw his warrants upon the Treasurer, charging the same to the appropriation for the Assessment Division. (1948 C., Ch. 23, § 69; 1960 C., § 126.090; 1994 C., § 5.06.090.)

5.06.100 Appeals to Board of Equalization.

All appeals to the Board of Equalization must be in writing and verified by affidavit on blanks furnished by the Assessor, who is given authority to prescribe the questions to be answered on the blanks by the appellant. (1948 C., Ch. 23, § 70; 1960 C., § 126.100; 1994 C., § 5.06.100.)

Charter:

Art. XV § 10 et seq. Board of Equalization

RSMo:

RSMo138.140—138.180 (2016) Board of Equalization in St. Louis City

Cases:

A taxpayer may waive notice of proposed increase in assessed valuation by Board of Equalization and appear to contest the increase, after which he cannot complain of insufficiency of notice. *State ex. rel. Lindell Tower Apts. v. Guise,* 357 Mo. 50, 206 S.W. 2d 320.

There is a presumption of validity and a good faith in actions of county boards of equalization. *May Dept. Stores Co. v. State Tax Commission,* 308 S.W. 2d 748.

Board of Equalization of St. Louis County has only such power and jurisdiction as given by statute. *Foster Bros. Mfg. Co. v. State Tax Commission,* 319 S.W. 2d 590.

Appearance by a property owner before the Board of Equalization at the time fixed cured any defect in the notice to appear. *State v. Bd. of Equalization,* 165 Mo. 1047 (1914).

The Board of Equalization did not prejudge the amount of an assessment increase, where the notice proposed an increase to $90,000.00 but the board only increased it to $28,900.00. *State v. Bd. of Equalization,* 165 Mo. 1047 (1914).

5.06.110 Tax levy annually.

For the support of the City government, payment of the City debt and interest thereon, and for the improvement of the City, a tax shall be levied annually, to be fixed by ordinance, upon all property made taxable by the laws of the state, within the limits of the City. (1948 C., Ch. 23, § 71; 1960 C., § 126.110; 1994 C., § 5.06.110.)

For property tax rate, see Ch. 5.26

RSMo:

RSMo 137.485—137.550 (2016) Property taxes

RSMo 92.010 et seq. (2016) Generally, taxation in St. Louis and Kansas City

City Counselor Ops.: 8108, 8840, 8899

McQuillin:

38.89 et seq. Power to levy assessment

5.06.120 Records showing basis of valuation.

There shall be prepared and maintained by the Assessor, as a permanent public record accessible to the public during office hours, suitable record cards upon which shall be recorded the various elements or the basis of valuation, which, among other factors, were taken into consideration in ascertaining and determining the true value, in money, each City lot or parcel of land and of each improvement thereon.

These cards shall have entered thereon the following substantiating information in regard to building and land, to indicate all facts requisite to the determination of the value of each lot or parcel and buildings thereon.

There shall be noted block number, lot number, street on which property fronts, and in case of a corner lot, mention must be made of the side street for consideration of corner factors, also the front and depth of lot, together with unit value and provision for entering depth and corner factor for the determination of final value. A provision on the card should be made for acreage and for entering percentage of enhancing or detracting influence that would enter into valuation of land. To further substantiate any enhancing or detracting influence it shall be required to provide for recording the following information:

Lot—Level, high or low.

Street—Asphalt, brick, concrete, dirt, macadam, etc.

Alley—Asphalt, brick, concrete, dirt, macadam, etc.

Improvements—Sidewalk, curb, water, sewer, gas, etc.

It is further directed that to enable the recording of building values, provision shall be made to permit the listing of a detailed description of each building, and for recording at least the following information:

Building—Single dwelling, double dwelling, duplex, bungalow, apartment, apartment hotel, flat building, club, elevator, factory, garage, gas station, hotel, mill, office, shop, store, theatre, warehouse, etc.

Foundation—Brick, concrete, concrete blocks, stone, etc.

Basement—Sub, full, part dirt floor, cement floor, laundry, or none, etc.

Construction—Brick, blocks, concrete, frame, mill, stone, tile, etc.

Exterior—Brick common, brick pressed, concrete, shingle, etc.

Plumbing—Modern, old style, open outside closet, toilet, City water, bath rooms, sewer, etc.

Roof—Board, gravel, iron, patent, prepared, shingle, shingle asbestos, slate, tile, etc.

Roof Style—Flat, gable, gambrel, hip, mansard, etc.

Porches—Brick, front side, sleeping, sun, etc.

Heating—Central station, fire places, furnaces, furnace, pipeless, furnished, gas, hot water, oil burner, steam, stove, vapor, etc.

Lighting—Combination, electric, gas, lamps, etc.

Miscellaneous—Bay windows, beam ceiling, billiard room, bookcases, cabinets, chimneys, china closet, elevator—hand, elevator—power, fire escape, indoor bed, mantles, refrigerator, sideboard, skylight, sprinklers, etc.

The permanent record card shall in addition to detailed description of building provide for recording following details in regard to garage:

Number of cars capacity, type, floor, roof, size, area, unit value and reproduction cost.

There shall also be provided, on permanent record card in space properly designated, the building dimensions, size, style, height, cube, or area and provision is to be made for recording of the condition of same, whether good, fair or bad, also lack of utility or obsolescence.

The permanent record card shall further provide on its face, space for the purpose of recording the number of rooms, and in case of apartments, the number of same and number of rooms in each, finished

attic rooms, finished basement rooms, date completed, age and when and how remodeled. There shall be provided on permanent record card a space headed "building appraisal," into which shall be inscribed a square with cross rulings representing ten feet on a side. There shall be sketched size and location of the building on the lot, and the size and position of porches and bays and recorded height from basement floor to top of wall.

The permanent record card shall provide space for the name of the owner of record as the same appears on the assessment book of each year, with space for recording transfers and date of same, and under the year of assessment shall be entered data from space of card listing land valuation, building and total valuation for taxation purposes.

There shall also be provided space on the reverse side of card for the name of the Deputy Assessor, reasons for decreased assessment and reasons for increased assessment, space for sketching of irregularly shaped lots and any additional information that the Assessor may deem necessary to substantiate valuation. (1948 C., Ch. 23, § 72; 1960 C., § 126.120; 1994 C., § 5.06.120.)

5.06.130 Uniform standard unit value.

The Assessor is directed to establish a uniform standard unit value for determining the true value in money of all City lots and parcels of land, which shall be designated as the standard unit foot and which shall be a strip of land one foot wide and one hundred twenty-five feet deep or other standard depth as shall be finally agreed upon and adopted.

This shall be done by determining the true value in money of the strip of land in the middle of each block extending one foot along the street frontage and at right angles to the street to a depth of one hundred twenty-five feet (or standard depth as varying conditions warrant) and the values so determined shall be the standard unit foot value to be considered, together with other factors, in determining the value of each lot or parcel of land in the block fronting on the street. (1948 C., Ch. 23, § 73; 1960 C., § 126.130; 1994 C., § 5.06.130.)

5.06.140 Depth table for lots varying from standard unit foot.

The Assessor shall establish a depth table for the purpose of uniformly assessing lots varying in depth from that of the established unit foot. The depth table shall set forth the percentage relationship which the standard unit foot value of lots of greater or less depths than the standard unit foot shall bear to the value of the standard unit foot and shall be based on Somers original curve of value. (1948 C., Ch. 23, § 74; 1960 C., § 126.140; 1994 C., § 5.06.140.)

5.06.150 Corner influence table.

The Assessor shall also establish a corner influence table which shall express uniform rules for the determination of enhancing or detracting value of side street influence, also uniform rules for the determination of the influence of an alley, railway or other enhancing or detracting elements. (1948 C., Ch. 23, § 75; 1960 C., § 126.150; 1994 C., § 5.06.150.)

5.06.160 Unit value maps.

The Assessor shall prepare unit value maps representing areas of convenient size upon which have been entered the prescribed unit value of land for each block in the district together with the corner influence and depth table applicable to the districts for use if desired at community meetings for discussion of the unit foot value entered thereon. (1948 C., Ch. 23, § 76; 1960 C., § 126.160; 1994 C., § 5.06.160.)

5.06.170 City block maps or plats.

The Assessor shall annually prepare City block maps or plats containing the assessment for land, buildings and improvements. These block maps or plats shall be posted in each block, or some place designated by the Assessor, on or before the second Monday in March annually. Provision on these plats shall be made for designating a suitable place, for public meetings, to be called for the purpose of public discussion and community expression of opinion relative to the uniform methods used in arriving at the assessed valuations of the land and buildings. (1948 C., Ch. 23, § 77; 1960 C., § 126.170; 1994 C., § 5.06.170.)

5.06.180 Manual—Building classification—Lot sizes.

There shall be prepared by the Assessor a schedule or manual classifying various types of buildings or structures by their use and construction with pictures or cuts of each representative type showing the uniform method of applying reproduction costs factors, previously determined by the square or cubic foot content of each type. The base reproduction price per square foot or cubic foot should appear beneath each picture. There

shall be noted on the bottom of each sheet additions and deductions because of variation from the standard type.

This manual shall further show with proper sketches set rules for the computation of values of lots of various sizes and shapes and describe the rules applicable thereto as follows:

Rule I Rectangular lots

To compute, multiply the unit value by the depth factor to obtain front foot value, multiply front foot value by lot frontage to obtain value of lot.

Rule II Back or no front lots

Use as depth factor the difference between the depth factors for the greatest and least distance from street.

Rule III "L" shaped lots

To compute, calculate as rectangular lot plus no front lot as outlined in Rule I and Rule II of this section.

Rule IV Lots with parallel sides irregular depth

Compute as for rectangular lot and use average depth for factor.

Rule V Triangular lots

With apex fronting on street compute one-third of base by depth factor represented by perpendicular depth.

Rule VI Triangular lots

With base fronting on street compute—use two-thirds of frontage on street by depth factor represented by perpendicular depth.

Rule VII Lots—Front and rear parallel (Street front greatest)

To compute, calculate difference between front and rear widths.

Reduce frontage by one-third of this difference. Then use perpendicular depth and compute same as rectangle.

Rule VIII Lots—Front and rear parallel (Street front less than rear)

To compute, add to frontage one-third of the difference between rear and front width. Then use perpendicular depth and compute as rectangle.

Rule IX Lots—Sides parallel, front, rear and sides irregular

To compute. Lots with irregular widths and depths.

Use average lengths of two sides as depth, calculate frontage same as Rule VII, reduce frontage by one-third of the difference between front and rear.

Rule X Irregular lots

Reduce to lots with parallel sides, or to triangles and proceed as outlined under rules governing previously stated.

Rule XI Lots fronting on curves

Reduce to equivalent rectangular, triangular or irregularly shaped lot and compute under methods outlined in previous rules.

Rule XII Lots with depth greater than standard depth fronting two streets of different unit values

Compute as standard depth lot on high unit value street, add remainder as lot fronting on low value street with depth as indicated.

Rule XIII Lots with depth greater than standard depth fronting two converging streets of different unit value

To compute, follow the method outlined above applying the principle of parallel sides with unequal depths.

Rule XIV To compute valuation on lots with depths greater than two hundred feet extending through from high unit value street to low unit value street.

Calculate lot of standard depth on low unit value street and add valuation on high unit value street for remainder of depth.

Rule XV To compute irregular lots extending through from street to street

Reduce to triangular lots and lots with parallel sides and compute as explained for through lots. (1948 C., Ch. 23, § 78; 1960 C., § 126.180; 1994 C., § 5.06.180.)

5.06.190 Manual—Corner influence rules.

The Assessor's manual shall, for the purpose of uniformity in assessing, show definite rules for application of corner influence tables previously adopted.

The Assessor shall not apply the corner influence table to residence corner lots where these lots have no value over inside lots in the judgment of the Assessor.

The Assessor shall, in case of doubt as to proper classification of a street corner, permit the present building operation to control.

The Assessor shall, for the purpose of uniformity in applying corner influence tables, set forth clearly in the manual the corner influence factors applied to lots of various shapes and dimensions as follows:

Rectangular lot fronting high value street. Compute as inside lot on high value street, using depth factor. Compute lot on low value street, using corner factor, sum of these equals valuation.

Rectangular lot, narrow frontage on high value street and greater than standard depth. Compute: Calculate corner lot of standard depth on high value street, compute lot on low value street using corner factor and compute rear portion of lot which is portion greater than standard depth, as inside lot on low value street, sum equals valuation.

The Assessor shall set forth in the manual the method to be used in the application of the corner influence factor for computing lots with irregular shape and unusual peculiarities and shall require that these rules be substantially adhered to in the computations necessary to arrive at value.

The Assessor shall designate the method of procedure in the same clear manner as is outlined in the examples in this section. (1948 C., Ch. 23, § 79; 1960 C., § 126.190; 1994 C., § 5.06.190.)

5.06.200 Manual—Value explanations.

The manual shall set forth depreciation data and define its use. Such data shall provide for the allowance of depreciation for such factors as age, neglect and improper maintenance and lack of utility or obsolescence. Lack of utility shall be construed to include nonconvertibility, improper layout, adaptation and faulty design.

The Assessor's manual shall explain enhancement of value due to remodeling or other causes. (1948 C., Ch. 23, § 80; 1960 C., § 126.200; 1994 C., § 5.06.200.)

5.06.210 Field men to have manuals.

The Assessor shall supply field men with copies of the manual and instruct them in its use and application. (1948 C., Ch. 23, § 81; 1960 C., § 126.210; 1994 C., § 5.06.210.)

5.06.220 Field record cards—Use.

The Assessor shall have printed conveniently sized record cards containing in abbreviated form space for recording data requisite for permanent record cards, together with the legal description of property to be used by Deputy Assessors in gathering required information. (1948 C., Ch. 23, § 82; 1960 C., § 126.220; 1994 C., § 5.06.220.)

5.06.230 Field record cards—Contents.

The Assessor shall charge his deputies with obtaining the required information in the field, sketch in building dimensions, measurements, descriptions and classifications as per manual and state use and construction of same, and note all enhancing and detracting factors that would effect final value. (1948 C., Ch. 23, § 83; 1960 C., § 126.230; 1994 C., § 5.06.230.)

5.06.240 Field record cards—Transfer of information.

The Assessor shall instruct that these field cards be returned to main office after buildings have been measured and appraised, where area or cubic contents shall be calculated and extended on cards. (1948 C., Ch. 23, § 84; 1960 C., § 126.240; 1994 C., § 5.06.240.)

5.06.250 Determination of true building value.

The reproduction cost shall be calculated and the age, condition or other factors extended on the cards under the supervision of a qualified building engineer to determine final true value in money of the building which is entered on permanent record cards. (1948 C., Ch. 23, § 85; 1960 C., § 126.250; 1994 C., § 5.06.250.)

5.06.260 Uniform assessment system.

The Assessor shall continue the present method of assessment of property until all steps have been taken to install completely the uniform assessment system set forth in this chapter, in order that there shall be no delay in the assessment of property annually, at the time prescribed by law. (1948 C., Ch. 23, § 86; 1960 C., § 126.260; 1994 C., § 5.06.260.)

5.06.270 Comptroller's duties.

The Comptroller, as head of the Department of Finance, shall prescribe forms and designate rules and regulations and require the observance thereof, for the purpose of maintaining proper accounting control over the books, bills and abstracts of the Assessor's Office. He shall make, or cause to be made, a continuous study looking to a further improvement and development of the method or system of assessments and shall in consequence of such study recommend to the Board of Aldermen proper amendments to this chapter. (1948 C., Ch. 23, § 87; 1960 C., § 126.270; 1994 C., § 5.06.270.)

Charter:

Art. XV § 16 Duty of comptroller as to erroneous assessments

RSMo:

RSMo 137.525 (2016) Duties of city comptroller in assessment of property

Ops. Atty. Gen.:

Assessment lists and assessment books maintained in office of assessor of City of St. Louis are public records open to public inspection. No. 40, May 13, 1955.

5.06.280 Assessor empowered to modify system.

The assessment system set forth in this chapter shall be followed by the Assessor assessing all land and buildings. However, if, in his judgment, any modifications are necessary in order to arrive at the true value, in money, of property he shall be authorized to make such modification. (1948 C., Ch. 23, § 88; 1960 C., § 126.280; 1994 C., § 5.06.280.)

Chapter 5.08

COLLECTION DIVISION

Charter:

Art. XXIII § 8 Collector to receive payment of all special tax bills

RSMo:

RSMo 52.020(2016) Bond—Deposits of collection

RSMo 92.700 et seq. (2016) Collection of delinquent taxes, generally

Ops. Atty. Gen.:

Neither the collector nor assessor of the city may charge fees for certifying that no taxes are owing for the preceding year. No. 284, June 28, 1971.

City Counselor Ops.: 9691, 10206

Cases:

Collector of revenue for city was legally elected at state election, but not at city election. *State v. Koeln,* 270 Mo. 174, 192 S.W. 749 (1917).

For case concerning time at which statute of limitations begins to run on tax liability, see *State v. Robertson,* 417 S.W. 2d 669 (1967).

McQuillin:

44.132 Tax collectors generally

Sections:

5.08.010 Collector's duties—Daily deposits—Receipts.

5.08.020 Daily receipt books.

5.08.030 Deputies—Collector's responsibilities.

5.08.040 Collection of delinquent real estate taxes.

5.08.050 Collection of water bills—Filing of reports.

5.08.060 Collection of special tax bills—Board of Public Service recommendation.

5.08.070 Compensation.

5.08.010 Collector's duties—Daily deposits—Receipts.

The Collector shall collect all revenues from all sources which may be levied by law or ordinance within the City, except licenses required by law to be collected by the License Collector, and keep a detailed account of his collections from all the different sources of revenue and taxation respectively. All collections made belonging to the City shall be paid into the City Treasury daily, and duplicate receipts taken therefor showing from what source the money proceeds and the account to which it is placed, one of which shall be filed with the Comptroller. (1948 C., Ch. 23, § 89; 1960 C., § 127.010; 1994 C., § 5.08.010.)

5.08.020 Daily receipt books.

The Collector shall keep all necessary books in which to enter the daily receipts from taxes upon real and personal property, delinquent and forfeited taxes, water rates and all other taxes. The entries shall be made in such manner as to show the total daily receipts from each source of revenue. (1948 C., Ch. 23, § 90; 1960 C., § 127.020; 1994 C., § 5.08.020.)

Charter:

Art. XV § 20 Collector

Art. XV § 21 Bond of collector

5.08.030 Deputies—Collector's responsibilities.

The Collector of Revenue shall have power to appoint deputies as necessary to perform the duties of the Collector's Office. The number shall not at any time exceed ninety-seven permanent deputies. The Collector may require bonds or other securities from deputies to secure himself. Each of the deputies shall have like authority in every respect to collect the taxes levied or imposed within the City or any part thereof which by law is vested in the Collector himself.

The Collector shall in every respect be responsible to the state, City, individuals, companies or corporations, as the case may be, for all moneys collected, and for every act done by any of his deputies while acting as such, and for any omission of duty by any of his deputies. The bond or security taken from a deputy by the Collector shall be available to the Collector, his representatives and securities, to indemnify them for any loss or damage arising from any act of the deputy. (1948 C., Ch. 23, § 91; 1960 C., § 127.030; 1994 C., § 5.08.030.)

Charter:

Art. XV § 19 Composition of collection division

RSMo:

RSMo 82.610 (2016) Assistants, deputies—appointments, terms

RSMo 82.630 (2016) Appointment of additional clerical help

5.08.040 Collection of delinquent real estate taxes.

The City elects to have the collection of its delinquent and back real estate taxes regulated and controlled by the provisions of the Municipal Land Reutilization Law of the state and to operate thereunder. (1994 C., § 5.08.040; Ord. No. 56054, § 1, 1971.)

For land reutilization authority, see Ch. 3.82.

RSMo:

RSMo 92.700—92.930 (2016) Municipal land reutilization law

5.08.050 Collection of water bills—Filing of reports.

The Collector of Revenue is hereby directed to collect and process water bills and in addition thereto is hereby directed that he has the additional duty and responsibility imposed upon him of preparing and filing monthly budget reports concerning the collection of the water bills.

The Collector of Revenue is further authorized to collect delinquent water bills, which are more than forty-five (45) days delinquent, in the same manner that he collects delinquent bill(s) under the Municipal Land Reutilization Law, RSMo 92.700 et seq. The Collector may also collect the delinquent bills pursuant to any other remedy provided for under Missouri law.

In addition to any other compensation otherwise provided by law, the Collector of Revenue shall receive compensation in the amount of nineteen thousand five hundred dollars annually for the additional duties and responsibilities imposed upon him by this section. (1994 C., § 5.08.050; Ord. No. 68040, § 2, 7-7-2008; Ord. No. 58746, § 1, 1983.)

5.08.060 Collection of special tax bills—Board of Public Service recommendation.

A. The Collector of Revenue in addition to those additional duties imposed in Section 5.08.050 shall have the additional duty and responsibility of supervising, collecting and processing all special tax bills as provided by law. In addition to any other compensation otherwise provided by law, the Collector of Revenue shall receive compensation in the amount of two thousand five hundred dollars ($2,500.00) annually for the additional duties and responsibilities imposed upon him by this subsection.

B. The provisions contained in Subsection A of this section relating to the collecting of special tax bills has been recommended by the Board of Public Service. (1994 C., § 5.08.060; Ord. No. 58746, §§ 2, 3, 1983.)

5.08.070 Compensation.

The compensation provided in this chapter shall be paid semimonthly in equal installments and shall be paid from all fees collected, deducted and retained by him pursuant to this chapter or any other law. (1994 C., § 5.08.070; Ord. No. 58746, § 4, 1983.)

Chapter 5.10

TREASURY DIVISION

For manner and conditions under which depositories of city funds received by city treasurer are selected, see §§ 5.12.040—5.12.150.

Sections:

5.10.010 Treasurer—Bond.

5.10.020 Bonds or coupons—Daily reports.

5.10.030 Payroll accounts—Daily reports.

5.10.040 Accounting books.

5.10.050 Warrants.

5.10.060 Cash on hand statement.

5.10.070 Daily deposits.

5.10.080 Office rules and regulations.

5.10.090 Unauthorized uses of public money—Forfeiture of office.

5.10.100 Assistant Treasurers—Paymasters—Clerks.

5.10.110 Subordinate bonds.

5.10.010 Treasurer—Bond.

The Treasurer shall give bond to the City in the sum of three hundred dollars. (1948 C., Ch. 23, § 93; 1960 C., § 128.010; 1994 C., § 5.10.010.)

For fiscal reports, see § 5.16.030.

City Counselor Ops.: 9524

5.10.020 Bonds or coupons—Daily reports.

In addition to his duties prescribed by the Charter, the Treasurer shall at the close of each day's business notify the Comptroller of the amount of bonds or coupons of the City that day paid at the office of the Treasurer, and such bonds or coupons shall be listed

and submitted to the Comptroller and Chairman of the Ways and Means Committee of the Board of Aldermen on Fridays preceding the close of each fiscal month, and on verification of the lists so submitted the Comptroller shall draw his warrant in favor of the Treasurer for the amount of bonds or coupons so shown to have been paid at the office of the Treasurer during the fiscal month then closing. On receipt of the Comptroller's warrant therefor all paid bonds or coupons passing through the treasury division shall be delivered to the Comptroller for filing, accompanied by a statement setting forth dates of issue, dates of maturity and denomination of bonds or coupons so paid, which statement shall be signed in duplicate by the Comptroller and by the Chairman of the Ways and Means Committee, one copy of which shall be filed with the Treasury Division and the other shall be filed with the Comptroller. The Treasurer shall furnish to the Comptroller and Mayor an itemized daily report of the condition of the Treasury. (1948 C., Ch. 23, § 94(part); 1960 C., § 128.020(part); 1994 C., § 5.10.020.)

Charter:

Art. XV § 23 Treasury division Art. XV § 24 Treasurer

RSMo:

RSMo 82.485 et seq. (2016) City treasurer, generally

5.10.030 Payroll accounts—Daily reports.

On Saturday preceding the close of each fiscal month the Treasurer shall return to the Comptroller all payrolls received by him during the preceding calendar month. The Comptroller shall examine the payrolls so returned and credit the Treasurer's payroll account with the amount entered thereon and charge the Treasurer's general account with the amount remaining unpaid, which amount so remaining unpaid shall be credited to "payroll account, special fund," and such amounts shall thereafter be paid only by separate warrants or payrolls. The payrolls so returned to the Comptroller shall be filed by him with the respective vouchers in his office. During the time the payrolls remain in the Treasurer's hands the amounts due on same shall be separately accounted for by the Treasurer in daily reports to the Comptroller and Mayor. Payrolls audited and placed in the Treasurer's hands for payment shall be charged against him on a separate account known as the "Treasurer's payroll account." (1948 C., Ch. 23, § 94(part); 1960 C., § 128.020(part); 1994 C., § 5.10.030.)

5.10.040 Accounting books.

It shall be the duty of the Treasurer to keep in proper books a full and comprehensive account of all moneys received and delivered by him in behalf of the City, representing the time when, and the persons from whom all funds are received. (1948 C., Ch. 23, § 95(1); 1960 C., § 128.030(1); 1994 C., § 5.10.040.)

5.10.050 Warrants.

It shall be the duty of the Treasurer to pay out money only on presentation of Comptroller's warrants, properly signed; to keep a register of all warrants presented for payment or redemption, describing same by their dates, numbers and amounts. All warrants so paid and redeemed shall be canceled by the Treasurer, and turned over to the Comptroller, daily, together with a list of same, taking Comptroller's receipt on his cash book for all warrants so turned over. The Comptroller shall daily credit the Treasurer's account with the aggregate amount of warrants so returned to him by the Treasurer, and warrants so returned shall be filed with their respective vouchers. (1948 C., Ch. 23, § 95(2); 1960 C., § 128.030(2); 1994 C., § 5.10.050.)

5.10.060 Cash on hand statement.

It shall be the duty of the Treasurer to furnish the Comptroller at the close of each fiscal month with a statement showing the cash on hand and in banks or trust companies. The statement shall be verified by the Comptroller and a certificate of verification filed with the Mayor and Treasurer. (1948 C., Ch. 23, § 95(3); 1960 C., § 128.030(3); 1994 C., § 5.10.060.)

5.10.070 Daily deposits.

It shall be the duty of the Treasurer to deposit daily to the credit of the City, in the bank or banking institution selected therefor by the Board of Estimate and Apportionment, as provided by ordinance in accordance with Section 25 of Article XV of the Charter, all moneys in his office at the close of banking hours, except sufficient currency as in his judgment is necessary, not to exceed five thousand dollars ($5,000.00), to meet daily demands. The Treasurer shall perform all other duties required of him by law. (1948 C., Ch. 23, § 95(4); 1960 C., § 128.030(4); 1994 C., § 5.10.070; Ord. No. 61251, § 1, 1989.)

5.10.080 Office rules and regulations.

Subject to the approval of the Comptroller, the Treasurer may establish rules and regulations for the transaction of business generally in his office which he deems expedient and not inconsistent with the Charter, law or ordinances. (1948 C., Ch. 23, § 96; 1960 C., § 128.040; 1994 C., § 5.10.080.)

5.10.090 Unauthorized uses of public money—Forfeiture of office.

The Treasurer is expressly prohibited from paying out or using himself or allowing anyone else to use, directly or indirectly, any of the public moneys, warrants, checks or other evidences of debt in his custody or under his control, for any purpose whatever, public or private, which is not authorized by law or ordinance, and any violation of the provisions of this section shall cause a forfeiture of his office. (1948 C., Ch. 23, § 97; 1960 C., § 128.050; 1994 C., § 5.10.090.)

5.10.100 Assistant Treasurers—Paymasters—Clerks.

The First Assistant Treasurer, in the absence of the Treasurer, shall perform all the necessary duties of the Treasurer, and shall act as teller when occasion requires. The Second Assistant Treasurer shall act as the regular teller. The Paymaster and assistant Paymaster shall have charge of all City payrolls and it shall be the duty of the Paymaster to receive from the Treasurer the amount of money necessary to pay such payments thereon at the Treasurer's Office. Subject to the approval of the Treasurer, the Paymaster shall determine which payments on the payrolls shall be made elsewhere than at the Treasurer's Office and at a point convenient to the place of work of those to be so paid. The First Assistant Treasurer, the Second Assistant Treasurer, the Paymaster, the Assistant Paymaster and the clerks employed in the treasury division shall perform other duties as prescribed by the Treasurer and shall be subject to the orders of the Treasurer. (1948 C., Ch. 23, § 99; 1960 C., § 128.060; 1994 C., § 5.10.100.)

5.10.110 Subordinate bonds.

The Treasurer shall require of each subordinate or appointee a bond, subject to the approval of the Comptroller, in an amount he deems necessary, conditioned for the faithful performance of all the duties pertaining to the position to which he has been appointed. (1948 C., Ch. 23, § 100; 1960 C., § 128.070; 1994 C., § 5.10.110.)

Chapter 5.12

CITY DEPOSITORIES

Prior history: Ords. 28285, 48493, 57500 and 57332; 1948 C. Ch. 23 §§ 101 and 102; 1960 C. Ch. 23 §§ 129.010 and 129.020

Sections:

5.12.010 Findings.

5.12.020 Duty of Treasurer to advertise for applications for certification as depositories.

5.12.030 Prospective depositories to be informed of requirements.

5.12.040 Prospective depositories to provide revitalization report.

5.12.050 Prospective depositories to provide statement and signatures.

5.12.060 Treasurer to prepare report regarding lending performance of prospective depositories.

5.12.070 Delivery of applications to Treasurer.

5.12.080 Funds Committee—Power to designate depositories.

5.12.090 Responsibilities of Treasurer and Funds Committee not limited or restricted by provisions.

5.12.100 Treasurer's report to Board of Aldermen.

5.12.110 Professional assistance—Competitive process required.

5.12.120 Deadline extensions.

5.12.010 Findings.

The Board of Aldermen hereby find it is in the best interest of the City to encourage banks and financial institutions to increase their financial commitment to the revitalization of the City through mortgage and home improvement loans to credit-worthy individuals and through commercial loans to facilitate development and redevelopment throughout the City. (1994 C., § 5.12.010; Ord. No. 64457, § 2, 1998.)

5.12.020 Duty of Treasurer to advertise for applications for certification as depositories.

In addition to the duties and obligations imposed by the Charter, this Code and the Missouri Revised Statutes upon the City Treasurer, (hereinafter referred to as "Treasurer"), it shall be the duty of the Treasurer to advertise annually, by February 1, for the submission, by March 1 in each year, of applications from regularly organized national and state depositories insured by the Federal Deposit Insurance Corporation for certification as depositories for funds of the City, and that any and all depositories applying for the deposit of such funds shall make loans available to all

areas of the City using normal credit criteria as the basis for making and/or refusing loans. (1994 C., § 5.12.020; Ord. No. 64457, § 3, 1998.)

5.12.030 Prospective depositories to be informed of requirements.

In advertising for applications for certification as depositories, it shall be the duty of the Treasurer to inform the prospective depositories that, for the protection of the public interest, depositories, national and state, must be federally insured. The Treasurer shall also inform the prospective depositories that deposits will only be placed in depositories that have fulfilled all legal requirements imposed by this Code and by the Missouri Revised Statutes with respect to investments and insuring the safety and security of City funds. The Treasurer shall measure the required collateral monthly. (1994 C., § 5.12.030; Ord. No. 64457, § 4, 1998.)

5.12.040 Prospective depositories to provide revitalization report.

With each application for certification as a depository for City funds, each applicant shall provide the Treasurer a report describing the applicant's efforts to satisfy the findings described in this chapter. Each report shall provide the description of programs of the applicant designed to assist and encourage the revitalization of the City and each report shall be in such detail and specificity as deemed appropriate by the Treasurer. (1994 C., § 5.12.040; Ord. No. 64457, § 5, 1998.)

5.12.050 Prospective depositories to provide statement and signatures.

With each application for certification as a depository for City funds, the Treasurer shall obtain signatures by either the chairman of the board, the chief executive officer, or another officer acceptable to the Treasurer, of the applying depository affirming that it has adopted the following pledge:

We pledge not to arbitrarily reject any loans for any properties or projects within the City of St. Louis, or within any specific geographic area in the City of St. Louis, because of the location and/or age of the property, or in the case of prospective borrowers, to arbitrarily vary the terms of loans or the application procedures for loans because of race, color, religion, national origin, age, sex or marital status. In addition, we pledge to make loans available on residential property in neighborhoods of all income levels in the City of St. Louis within the limits of legal restrictions and prudent financial practices.

All collateral security agreements governing depositories, institutional banking and investments must be in a form acceptable to the City Treasurer. (1994 C., § 5.12.050; Ord. No. 64457, § 6, 1998.)

5.12.060 Treasurer to prepare report regarding lending performance of prospective depositories.

Each year, following the receipt of applications, the Treasurer shall, through the efforts of his office or with the assistance of the Community Development Agency, prepare a report on the performance of the applying institutions with respect to their lending activity in the City. This report shall consider the materials submitted by the applying depositories as well as other available material relevant to lending activity in the City. The Treasurer shall forward this report to the Funds Committee of the City for its use in the designation of depositories. (1994 C., § 5.12.060; Ord. No. 64457, § 7, 1998.)

5.12.070 Delivery of applications to Treasurer.

All applications and other material received from the depositories shall be delivered annually to the Treasurer not later than March 1 and shall be reported by the Treasurer to the Funds Committee of the City, made up of the Mayor, the Comptroller and the Treasurer, for its information and consideration not later than the 1st day of June of each year. (1994 C., § 5.12.070; Ord. No. 64457, § 8, 1998.)

5.12.080 Funds Committee—Power to designate depositories.

The Funds Committee shall have the power to designate as depositories those institutions which, in its opinion, have established and are carrying out the findings contained in Section 5.12.010 of this chapter. Depositories must also meet all other legal requirements for depositories which are to receive City funds. The Funds Committee shall have the power to reject any applications as it deems necessary for the protection of the City's interests. Only regularly organized state or national institutions insured by the Federal Deposit Insurance Corporation with a minimum credit criteria as recommended by the Treasurer and approved by the Funds Committee may be designated as depositories. No financial institution shall be designated as a depos-

itory unless it shall have complied with the requirements of the Funds Committee. (1994 C., § 5.12.080; Ord. No. 64457, § 9, 1998.)

5.12.090 Responsibilities of Treasurer and Funds Committee not limited or restricted by provisions.

The provisions of this chapter for the designation of depositories for City funds shall neither limit nor restrict the responsibilities placed on the Treasurer and on the Funds Committee to place City deposits in those designated depositories which offer the highest rates of interest. No financial institution shall be designated as a depository unless it shall have complied with the requirements of this chapter. (1994 C., § 5.12.090; Ord. No. 64457, § 10, 1998.)

5.12.100 Treasurer's report to Board of Aldermen.

The Treasurer shall make a report to the President of the Board of Aldermen of the actions of the Funds Committee on applications by depositories for designation as depositories. This report shall indicate which depositories applied to be designated as depositories and which were designated. This report shall be made to the Board of Estimate and Apportionment on or before the tenth day of the month next succeeding the month during which the Funds Committee considered and acted upon the applications. The Treasurer shall make the report described in this chapter available for immediate public inspection by posting the report on the Treasurer's Office website and placing it in a designated location in the office of the Treasurer. (1994 C., § 5.12.100; Ord. No. 69150, § 1, 5-8-2012; Ord. No. 64457, § 11, 1998.)

5.12.110 Professional assistance—Competitive process required.

In the event the Treasurer contracts for any professional services to implement this chapter, the Treasurer shall utilize a competitive process. (1994 C., § 5.12.110; Ord. No. 64457, § 12, 1998.)

5.12.120 Deadline extensions.

In the event any deadline set forth herein falls on a Saturday, Sunday, or legal holiday, the deadline shall automatically be extended until the next subsequent business day. (1994 C., § 5.12.120; Ord. No. 64457, § 13, 1998.)

Chapter 5.14

BUDGET

Sections:

5.14.010 Director.
5.14.011 Office of Management Services—Created.
5.14.012 Office of Management Services—Responsible to Budget Director and Administrator.
5.14.020 Fiscal year.
5.14.030 Annual budget required—Preparation.
5.14.040 Contents—Deficits.
5.14.050 Budget message—Public improvement projects.
5.14.060 Public record.
5.14.070 Aldermanic action on budget.
5.14.080 Allotment system for control of expenditures.
5.14.090 Allotment reductions.
5.14.100 Transfer of appropriation balances.
5.14.110 Supplementary appropriations.
5.14.120 Emergency appropriations.
5.14.130 Disbursements must be lawfully authorized—Liability of officers.

5.14.010 Director.

There is created a Division of the Budget which shall be in charge of a Budget Director appointed by the Board of Estimate and Apportionment. The Budget Director shall be responsible for the preparation and administration of the annual budget. He shall:

A. Secure and analyze budget requests of all departments and agencies of the City and make recommendations to the Board of Estimate and Apportionment as to revision of such requests;

B. Estimate receipts and other moneys available for use in the annual budget, and review such estimates monthly and immediately notify the Board of Estimate and Apportionment if he ascertains, at any time during the budget year, that the total appropriations for any fund are greater than the revenues to be actually received during the year, plus any unencumbered balance or less any deficit at the beginning of the year;

C. Survey departments and agencies of the City and consult with the responsible heads thereof to de-

termine their requirements for effective and economical administration of the City's affairs and make recommendations to the Boards of Estimate and Apportionment with reference thereto. (1960 C., § 133.010; 1994 C., § 5.14.010; Ord. No. 49318, § 1, 1959.)

5.14.011 Office of Management Services—Created.

There is hereby created within the government of the City an Office of Management Services. (1994 C., § 5.14.011; Ord. No. 57310, § 1, 1977.)

5.14.012 Office of Management Services—Responsible to Budget Director and Administrator.

The Office of Management Services hereby created shall be directly responsible to the Budget Director and an Administrator. Such Administrator shall be provided assistants as shall be appointed by the Budget Director. In addition to the personnel of this office, the Board of Estimate and Apportionment may contract with such private professional service organizations for any necessary services to carry out the function of this office. (1994 C., § 5.14.012; Ord. No. 57310, § 2, 1977.)

5.14.020 Fiscal year.

The fiscal year of the City shall commence on the first day of July of each year or at such other time as may be provided by ordinance, recommended by the Board of Estimate and Apportionment. Such year shall also constitute the budget year for the City. (1960 C., § 122.020; 1994 C., § 5.14.020; Ord. No. 60340, § 1, 1987; Ord. No. 55083, § 2, 1968; Ord. No. 49318, § 2(a), 1959; Ord. No. 49097, § 1, 1958.)

Editor's Note:

Ordinance 60340 became effective immediately after the election held on April 7, 1987.

The first fiscal year pursuant to this ordinance shall begin on July 1, 1988.

Charter:

Art. XVI § 8 Fiscal year

5.14.030 Annual budget required—Preparation.

Not later than ten days after the convening of the Board of Aldermen on the third Tuesday in April, the Board of Estimate and Apportionment shall submit and recommend to the Board of Aldermen a budget for the ensuring year, an explanatory budget message, an appropriation ordinance conforming with the budget, and bills establishing the City tax rates for the current year.

For such purposes, the Budget Director shall obtain detailed estimates of revenues and expenditures from the chief officer of each department or agency, together with an estimate of all public improvement projects pending and those which each officer recommends to be undertaken within the budget year and within the five ensuing years.

After receiving such estimates, the Budget Director shall prepare a proposed budget and review it with the heads of departments and other agencies and submit the revised budget to the Board of Estimate and Apportionment.

The Board of Estimate and Apportionment shall review the proposed budget with the heads of departments and other agencies, hold at least one public hearing thereon, after giving at least five days' notice in the City Journal, and make revisions it deems advisable. (1960 C., § 122.030; 1994 C., § 5.14.030; Ord. No. 49318, § 2(b), 1959.)

Constitution:

Art. 6 § 24 Annual budgets and reports of local government and municipally owned utilities

Charter:

Art. XVI § 3 Annual budget and tax rate

Cases:

Board of estimate and apportionment, being board created by city charter, is a "public governmental body" within the Sunshine Law, *Cohen v. Poelker,* 520 S.W. 2d 50 (1975).

McQuillin:

3939 et seq. Budget

5.14.040 Contents—Deficits.

The budget submitted by the Board of Estimate and Apportionment to the Board of Aldermen shall provide a complete financial plan for the budget year for all funds of the City and shall include:

A. Estimated revenues to be actually received from all sources for the budget year, with a comparative statement of actual revenues for the two years next preceding, itemized by year, fund and source;

B. Proposed expenditures recommended by the Board of Estimate and Apportionment for each department or agency for the budget year, together with a

comparative statement of expenditures for the two years next preceding, itemized by year, fund, activity and object;

C. The amount required for the payment of interest, amortization, and redemption charges on the debt of the City;

D. General Budget Summary. In no event shall the total amount of proposed expenditures for the budget year from any fund exceed the estimated revenues to be actually received plus any unencumbered balance or less any deficit estimated for the beginning of the budget year. (1960 C., §§ 122.040, 122.050; 1994 C., § 5.14.040; Ord. No. 49318, § 2(c), 1959.)

5.14.050 Budget message—Public improvement projects.

The budget message shall contain a complete explanation of the budget, with reasons for any major changes from the preceding year. As part of the message, the Board of Estimate and Apportionment shall state the estimated cost of all public improvement projects pending or in the process of completion and those which are recommended to be undertaken during the budget year and, also, a program of proposed public improvement projects for the ensuing five fiscal years. (1960 C., § 122.060; 1994 C., § 5.14.050; Ord. No. 49318, § 3, 1959.)

5.14.060 Public record.

The budget, budget message and all related schedules, exhibits and other explanatory matter shall be a public record open to public inspection in the office of the Budget Director. The Budget Director shall have sufficient copies of the budget and budget message prepared for distribution to interested persons. (1960 C., § 122.070; 1994 C., § 5.14.060; Ord. No. 49318, § 4, 1959.)

5.14.070 Aldermanic action on budget.

The Board of Aldermen may reduce any item in the proposed appropriation ordinance except those for the payment of principal or interest on the City debt or for meeting any Charter, ordinance or statutory obligations, but it may not increase any item or insert new items. The appropriation and tax rate bills referred to in Section 5.14.030 for each budget year shall be enacted not later than the fourth Monday in May of the budget year. If the tax rates are not established by ordinance on or before the fourth Monday in May of any year, the rates last previously established shall be the rates for the current year. Until the time the appropriation ordinance is enacted the several amounts last appropriated for each department or agency, so far as they relate to salaries or emergency supplies, materials and equipment, shall be reappropriated for the budget year. (1960 C., § 122.080; 1994 C., § 5.14.070; Ord. No. 49318, § 5, 1959.)

5.14.080 Allotment system for control of expenditures.

The Mayor, with the assistance of the Comptroller and the Budget Director, may control the rate at which all appropriations are expended during the budget year through a system of allotments. The allotments shall be based on work programs prepared by each department or agency. Whenever the allotments are established and approved by the Mayor, the Comptroller shall authorize expenditures to be made only on the basis thereof. (1960 C., § 122.090; 1994 C., § 5.14.080; Ord. No. 49318, § 6, 1959.)

5.14.090 Allotment reductions.

Whenever the total appropriations against any fund are greater than the total estimated revenues to be actually received into the fund during the budget year plus any unencumbered balance or less any deficit at the beginning of the year, the Mayor may reconsider all the expenditure allotments against such fund. Whenever the Mayor reconsiders the expenditure allotments, he shall, within a reasonable time, prepare and submit to the Board of Aldermen a proposed schedule of allotment reductions which will prevent expenditures in excess of the revenues and cash balance. If the Board is not in session, or is in recess, the Mayor shall convene it in a special session in time to receive the proposed schedule of allotment reductions.

The Board of Aldermen shall consider the schedule and may, by resolution, approve or amend it; but the Board shall not amend the schedule to make the total amount of all allotment reductions for any fund less than the total amount proposed for the fund by the Mayor. The schedule of allotment reductions, as may be approved by a majority vote of all members of the Board, shall become effective immediately upon approval. Failure of the Board to approve a schedule of allotment reductions within fifteen days after receipt of the schedule proposed by the Mayor shall constitute approval of the Mayor's schedule.

Whenever expenditure allotments are reduced in the manner provided in this section, the allotments for

the Department of Personnel shall in no case be reduced to less than one-half of one percent of the amount of all expenditures for personnel services in the City service in the fiscal year next preceding. (1960 C., § 122.100; 1994 C., § 5.14.090; Ord. No. 49318, § 7, 1959.)

5.14.100 Transfer of appropriation balances.

Whenever approved by the Board of Estimate and Apportionment, the Comptroller may transfer any unencumbered appropriation balance or portion thereof from one classification of expenditure to another within any department or agency, except that appropriations for capital outlays or extraordinary nonrecurring expenditures shall not be subject to transfer. On the recommendation of the Board of Estimate and Apportionment and within the last six months of the fiscal year, the Board of Aldermen may, by resolution, transfer an unencumbered appropriation balance or part thereof from any division, department, office or agency to any other division, department, office or agency. The Board of Estimate and Apportionment shall not approve or recommend any transfer until after receiving from the Budget Director a report and recommendation thereon. (1960 C., § 122.110; 1994 C., § 5.14.100; Ord. No. 49318, § 8, 1959.)

City Counselor Ops.: 10224

5.14.110 Supplementary appropriations.

At any time during the budget year, upon the recommendation of the Board of Estimate and Apportionment, the Board of Aldermen may make supplementary appropriations if:

A. The Comptroller, together with the Budget Director, estimates that such appropriations will not cause a deficit at the end of the budget year; or

B. The Board of Estimate and Apportionment shall recommend and the Board of Aldermen shall enact an ordinance or ordinances providing additional revenues and the Comptroller, together with the Budget Director, estimates that the amount of such additional revenues to be actually received during the budget year will equal or exceed the amount of the proposed supplementary appropriations. (1960 C., § 122.120; 1994 C., § 5.14.110; Ord. No. 49318, § 9, 1959.)

5.14.120 Emergency appropriations.

Whenever recommended by the Board of Estimate and Apportionment, as necessary for the immediate preservation of the public health, safety, or welfare, emergency appropriations may be made by vote of three-fourths of all members of the Board of Aldermen. (1960 C., § 122.130; 1994 C., § 5.14.120; Ord. No. 49318, § 10, 1959.)

5.14.130 Disbursements must be lawfully authorized—Liability of officers.

Except as otherwise expressly provided, no money shall be drawn from the City Treasury and no money obligation shall be incurred except pursuant to an appropriation made by ordinance, and at the end of each fiscal year the unexpended and unencumbered parts of all appropriations shall revert to the funds from which appropriated. Any official approving for payment any claim for which there is not a sufficient unencumbered balance in the appropriation, or which is contrary to Charter provisions shall be liable therefor in person and on his bond and shall be subject to removal from office. (1960 C., § 122.140; 1994 C., § 5.14.130; Ord. No. 49318, § 11, 1959.)

City Counselor Ops.: 9713

Chapter 5.16

FISCAL REPORTS

Sections:

5.16.010 Annual and semiannual reports.
5.16.020 Division of Audit and Accounting report.
5.16.030 Treasurer's report.
5.16.040 Officer, departmental and board reports.
5.16.050 Settlement of accounts.

5.16.010 Annual and semiannual reports.

Annual and semiannual reports of the fiscal business under the charge of all officers and departments and boards of the City shall be made and delivered to the Comptroller on the second Tuesday of April and October, respectively, of each year, in relation to all the fiscal business under their charge since their last annual report. (1948 C., Ch. 23, § 48(part); 1960 C., § 125.010; 1994 C., § 5.16.010.)

5.16.020 Division of Audit and Accounting report.

The report of the head of the Division of Audit and Accounting shall present a balance sheet of all accounts at the date of his last annual report, the aggregate debits and credits, respectively, in detail added

to each account since, and a balance sheet of all such accounts on the date of the report, and shall contain other information in relation to the business of his office as required. (1948 C., Ch. 23, § 48(part); 1960 C., § 125.020; 1994 C., § 5.16.020.)

5.16.030 Treasurer's report.

The report of the Treasurer shall state in detail the cash on hand at the date of his last annual report, the amount since received and the amount paid out in detail to the debit and credit, respectively, of the various accounts of his books, the balance remaining on hand, and of what it consists and where it is deposited. (1948 C., Ch. 23, § 48(part); 1960 C., § 125.030; 1994 C., § 5.16.030.)

5.16.040 Officer, departmental and board reports.

Similar monthly reports shall be made by all officers and departments and boards, and submitted to the Comptroller on the second Tuesday of each month, and all reports shall contain a list of all deputies, clerks and assistants, employed in their respective offices. (1948 C., Ch. 23, § 48(part); 1960 C., § 125.040; 1994 C., § 5.16.040.)

5.16.050 Settlement of accounts.

Settlements shall also be made by all fiscal officers as required by law, at the same time that reports are made to the Comptroller. All amounts found due by the several officers shall be immediately paid into the City Treasury, and the books of all officers shall be compared and balanced annually, semiannually and monthly. (1948 C., Ch. 23, § 48(part); 1960 C., § 125.050; 1994 C., § 5.16.050.)

Chapter 5.18

AUDIT AND ACCOUNTING

For fiscal reports, see § 5.16.020.

Sections:

5.18.010 Appropriation and transfer entries.
5.18.020 Trial balance—Reports.
5.18.030 Records—Contents.
5.18.040 Accounts and claims—Contents.
5.18.050 Accounts and claims—Forwarding.
5.18.060 Treasurer's accounts.
5.18.070 Worthless accounts.
5.18.080 Comptroller and Board of Estimate and Apportionment accounts.
5.18.090 Reports of indebtedness made by Mayor and Comptroller.
5.18.100 Audit by certified public accountant.

5.18.010 Appropriation and transfer entries.

Whenever the Board of Aldermen shall, by ordinance, approved by the Board of Estimate and Apportionment, appropriate any money out of the municipal revenue, or out of any special funds, or shall with the approval of the Board of Estimate and Apportionment transfer money from one fund to another, the Comptroller shall immediately make the transfer on his books, in accordance with the ordinance. If any appropriation be made by ordinance in behalf of any public work, the Comptroller shall, as soon as the work is completed, transfer the balance remaining to the account or fund from which it was originally appropriated. (1948 C., Ch. 23, § 40; 1960 C., § 124.010; 1994 C., § 5.18.010.)

5.18.020 Trial balance—Reports.

The Division of Audit and Accounting in the Department of Finance, shall make and keep a trial balance of the general ledger once each month, and shall include in annual and semiannual reports to the Comptroller a copy of the trial balance, and shall communicate such other information pertaining to the business in office as necessary or required by the Comptroller. (1948 C., Ch. 23, § 41; 1960 C., § 124.020; 1994 C., § 5.18.020.)

5.18.030 Records—Contents.

The following books and records shall be kept in the Division of Audit and Accounting of the Department of Finance:

A. *Record of Claims.* With appropriate columns and headings, wherein shall be entered every account allowed or paid, showing on what account made, its date and name of claimant, the amount claimed, amount allowed, amount rejected, number of warrant, the fund paid from and such other information as may be desirable.

B. *Warrant Books.* With stubs showing the date of warrant, their number, amounts, the fund paid from, the numbers of claims and names of claimants, and such other information as may be useful; which stubs shall be kept and preserved as records of warrants issued.

C. *Bills Payable Books.* Into which shall be entered all bonds, notes, bills and all other written obligations, given or payable to the City, with the name of the maker, payee and holder, and the time when payable, principal and interest.

D. *Bills and Accounts Receivable Books.* Into which shall be entered all demands and claims held by the City against other persons or corporations, whether written obligations or open accounts, whether for the sale of lands or property, or other thing, or for rent or other consideration, in which shall be set forth the names of debtors, character of claims and obligation, the amount thereof, and when due and payable.

E. *Register of Bonds of the City.* With appropriate columns and headings, representing date of issue, to whom, on what account and when payable, showing amount of bonds, rate of interest and amount of semi-annual coupons and all other necessary information. (1948 C., Ch. 23, § 42; 1960 C., § 124.030; 1994 C., § 5.18.030.)

5.18.040 Accounts and claims—Contents.

All accounts, bills or claims which are presented for settlement and allowance against the City, must state by what authority, for what purpose, and at whose direction the liability is created, the price or rate charged and the total amount written out in full, and the proper officer having knowledge of the facts of the case must certify thereto before allowance. No officer shall present for allowance in his own behalf any claim based on the payment by him of a subvoucher where it is practicable to have the voucher audited and allowed in the name of the original party. (1948 C., Ch. 23, § 43; 1960 C., § 124.040; 1994 C., § 5.18.040.)

5.18.050 Accounts and claims—Forwarding.

All accounts, claims and demands which are required to be certified as provided in Section 5.18.040 must be prepared by the respective officers and boards of the City government, and forwarded to the Comptroller on or before the second day of each month, covering all liabilities created in relation to business under their supervision during the preceding month. (1948 C., Ch. 23, § 44; 1960 C., § 124.050; 1994 C., § 5.18.050.)

5.18.060 Treasurer's accounts.

On or before the tenth day of each month, or oftener, upon written request from the Treasurer, the Comptroller and Chairman of the Ways and Means Committee of the Board of Aldermen, shall meet and examine, count and cancel all bonds, notes, coupons and other indebtedness of the City, paid by the Treasurer or returned to him by the fiscal agents of the City, and certify the amount thereof, including commissions and expenses, and deliver the same to the Comptroller for safe keeping, taking the Comptroller's duplicate receipt therefor, one of which shall be delivered to the Treasurer, one to be retained by the Comptroller. The payments of all bonds, notes, coupons or other indebtedness by the Treasurer, as ascertained by the Comptroller and Chairman of the Ways and Means Committee, shall be audited and allowed as other claims are. (1948 C., Ch. 23, § 45(part); 1960 C., § 124.060(part); 1994 C., § 5.18.060.)

5.18.070 Worthless accounts.

The Comptroller and Chairman of the Ways and Means Committee shall also ascertain the nature and amount of all claims that the City has against any person standing upon the books of the Comptroller, which are more than fifteen years past due, which in their judgment are worthless, and shall direct the Comptroller to transfer such claims to a suspense account, and the amount thereof shall not thereafter be included in the statement of the assets of the City until the whole or some part thereof shall have been collected by the City. (1948 C., Ch. 23, § 45(part); 1960 C., § 124.060(part); 1994 C., § 5.18.070.)

5.18.080 Comptroller and Board of Estimate and Apportionment accounts.

Similar settlements shall be made by the Chairman of the Committee of Ways and Means of the Board of Aldermen with the Comptroller for whatever public debts may be paid by him, or on his account, and with the Board of Estimate and Apportionment for such as may be purchased and retired by them, and in every case of such settlement similar certificates shall be given in behalf of the Comptroller and Board of Estimate and Apportionment, respectively, upon which they shall receive all proper credits on the books of the Comptroller, and all coupons detached from bonds and returned to the Board of Estimate and Apportionment shall be receipted for in duplicate and charged against them on the books of the Comptroller. (1948 C., Ch. 23, § 46; 1960 C., § 124.070; 1994 C., § 5.18.080.)

5.18.090 Reports of indebtedness made by Mayor and Comptroller.

All sales of bonds, notes or other evidence of indebtedness made by the Mayor and Comptroller shall

be immediately reported to the Division of Audit and Accounting, upon which the Division shall make the proper entries on its books, and the proceeds of all such sales shall be at once delivered to the Treasurer. (1948 C., Ch. 23, § 47; 1960 C., § 124.080; 1994 C., § 5.18.090.)

5.18.100 Audit by certified public accountant.

The Mayor is required, on or before the first day of August of each year, to appoint a certified public accountant whose duty it shall be to thoroughly audit all books, accounts and records relating to the fiscal affairs of the City and to report the result to the Mayor, and to file a copy of the report with the Register. (1948 C., Ch. 23, § 18; 1960 C., § 124.090; 1994 C., § 5.18.100.)

Charter:

Art. VII § 1 Mayor shall appoint a certified public accountant

Chapter 5.19

ALDERMANIC EXPENSES

Sections:

5.19.010 Expense account authorized.
5.19.020 Fund for expenses—Use.
5.19.030 Report—Filing Required.
5.19.040 Report—Available to public.

5.19.010 Expense account authorized.

The authority of Resolution 3 adopted on April 19, 1988 authorizing the payment to each Alderman of special sums known as an expense account is hereby adopted. The future authorization of funds payable in periodical amounts to Aldermen, whether authorized by ordinance addressed to that purpose, or by resolution on a session by session basis, will for all purposes be governed by the procedures set forth in this chapter. (1994 C., § 5.19.010; Ord. No. 61090, § 1, 1988.)

5.19.020 Fund for expenses—Use.

There shall be appropriated and set aside annually out of general municipal revenue the sum of Seventy-Five Thousand Dollars ($75,000.00) for the members of the Board of Aldermen to be used for Aldermanic Expenses. Each Alderman and the President shall receive the sum of Five Thousand Dollars ($5,000.00) The fund shall be used by each Alderman at his/her discretion. Each Alderman shall report to the Clerk of the Board of Aldermen for the use of the fund in the aggregate amounts for each of the following categories:

A. Civic and Charitable Contributions

B. Memberships

C. Miscellaneous Office Expense

D. Flowers and Gifts

E. Entertainment, Lobbying and other Business-Related Activities

F. Personal

G. Automobile and Travel Expense. (1994 C., § 5.19.020; Ord. No. 71615, § 2, 1-27-2023; Ord. No. 61090, § 2, 1988.)

5.19.030 Report—Filing Required.

The Aldermen's obligation to file said report as called for in Section 5.19.020 shall be construed as mandatory, and shall be considered and construed to be a condition precedent to drawing any funds against the future months' expense account, whether said following months' expense account has been authorized by the adoption of an approved budget for the City, of which said expense account shall be a part, or whether the expense account is merely proposed and is operating under the City authority of a continuing resolution. (1994 C., § 5.19.030; Ord. No. 61090, § 3, 1988.)

5.19.040 Report—Available to public.

Such report shall be kept by the Clerk of the Board of Aldermen and shall be available to the public upon request. The Clerk of the Board of Aldermen shall certify to the Comptroller that the Aldermen have complied with the provisions set forth in this chapter. The report shall be filed with the Clerk of the Board of Aldermen on April 16 of each year or the next business day thereafter. (1994 C., § 5.19.040; Ord. No. 61090, § 4, 1988.)

Chapter 5.20

COMMISSIONS FOR CITY REAL ESTATE SALES

Sections:

5.20.010 Authorized.
5.20.020 When payable.
5.20.030 Computation.

5.20.010 Authorized.

The Comptroller is authorized to pay to any real estate broker licensed to do business in the City, a commission earned through the sale of any parcel of property offered for sale by the City in open listing. (1948 C., Ch. 23, § 19; 1960 C., § 90.010; 1994 C., § 5.20.010.)

5.20.020 When payable.

No sales commission under the provisions of Section 5.20.010 shall be due or deemed earned until the sale has been fully consummated, agreed price paid, and delivery of title made. (1948 C., Ch. 23, § 20; 1960 C., § 90.020; 1994 C., § 5.20.020.)

5.20.030 Computation.

All commissions under the provisions of Section 5.20.010 shall be computed upon the following basis: Sales, industrial, manufacturing or warehouse property, improved or unimproved, five percent (5%) on gross amount of sale. All other classes of property, five percent (5%) on gross amount of sale up to and including twenty thousand dollars ($20,000.00). Where gross amount of sale price exceeds twenty thousand dollars ($20,000.00), five percent (5%) on the first twenty thousand dollars ($20,000.00), plus three percent (3%) on balance in excess of twenty thousand dollars ($20,000.00). Where the gross amount of the sale price of any property is less than one thousand dollars ($1,000.00), a minimum commission of fifty dollars ($50.00) shall be paid. (1948 C., Ch. 23, § 21; 1960 C., § 90.030; 1994 C., § 5.20.030.)

Chapter 5.22

EARNINGS TAX

City Counselor Ops.: 7647, 8369, 8463, 8482, 8513, 8530, 8640, 8661, 8775, 8802, 9015, 9237, 9287, 9375, 10516

Sections:

5.22.010 Definitions.
5.22.020 Tax imposed.
5.22.023 Continuation of earnings tax.
5.22.025 Earnings tax credit.
5.22.030 Nonresident businesses.
5.22.040 Nonresident individual.
5.22.050 Return—Payment.
5.22.060 Withholding.
5.22.070 State's compensation.
5.22.080 Reconciliation report.
5.22.090 Nontaxable income.
5.22.100 Enforcement.
5.22.110 Interest and penalties on unpaid taxes.
5.22.120 Taxes, interest and penalties recoverable.
5.22.130 Penalty for violation.
5.22.140 Tax evasion.
5.22.150 Promoters, booking agents, managers and publishers—Penalty.
5.22.160 Exemption.

5.22.010 Definitions.

As used in this chapter, the following words shall have the meaning ascribed to them in this section, except where the context clearly indicates or requires a different meaning:

A. "Association" means a partnership, limited partnership, or any other form of unincorporated business or enterprise, owned by two or more persons.

B. "Business" means an enterprise, activity, profession, trade or undertaking of any nature conducted for profit or ordinarily conducted for profit, whether by an individual, association, or any other entity other than a corporation.

C. "City" means the City of St. Louis.

D. "Collector" means the Collector of Revenue of the City.

E. "Corporation" means a corporation or joint stock association organized under the laws of the United States, the State of Missouri or any other state, territory, or foreign country or dependency.

F. "Employer" means an individual, association, corporation (including a corporation not for profit), governmental administration, agency, arm, authority, board, body, branch, bureau, department, division, subdivision, section or unit, or any other entity, who or that employs one or more persons on a salary, wage, commission, or other compensation basis, whether or not such employer is engaged in business as hereinbefore defined.

G. "Net profits" means the net income of any individual, association, business, or corporation remaining after deducting from the gross profits or earnings the necessary expenses of operation exclusive of payments of federal and state income taxes.

H. "Nonresident" means an individual, association, business, corporation, fiduciary or other entity domiciled outside the City.

I. "Person" means every natural person, association, business, or fiduciary. Whenever the term "Person" is used in any clause prescribing and imposing a penalty, the term as applied to associations, means the partners thereof, and, as applied to corporations, the officers thereof.

J. "Resident" means an individual, association, business, corporation, fiduciary or other entity domiciled within the City.

K. "Taxpayer" means a person, whether an individual, association, business, corporation, fiduciary, or other entity required by this chapter to file a return of earnings or net profits, or to pay a tax thereon. (1948 C., Ch. 23, § 140; 1960 C., § 145.010; 1994 C., § 5.22.010; Ord. No. 48875, § 1, 1958; Ord. No. 47063, § 1, 1954; Ord. No. 46222, § 1, 1952.)

Charter:

Art. I § 4 Earnings tax

RSMo:

RSMo 92.105 et seq. (2016) Earnings tax (St. Louis)

City Counselor Ops.: 7708, 8463, 9080, 9301, 9701, 9722, 9828

Cases:

Earnings tax was not so unreasonable and arbitrary with respect to classification as to be unconstitutional. *Barhorst v. City of St. Louis,* 423 S.W. 2d 843 (1968).

Ordinance 43783, which imposed an earnings tax on residents and nonresidents, held void. *Carter Carburetor Corp. v. City of St. Louis,* 203 S.W. 2d 438 (1947).

Earnings of shipboard employee of company owning excursion steamer and excursion motor vessel were subject to the city of St. Louis earnings tax. *Streckfus Steamers, Inc. v. City of St. Louis,* 472 S.W. 2d 660 (1971).

Earnings tax applies to the income of lawyers practicing in the city. *Lawyers' Association of St. Louis v. City of St. Louis,* 294 S.W. 2d 676 (1956).

Statute authorizing earnings tax is not a "local" or "special law" in violation of the constitution. See *Walters v. City of St. Louis,* 259 S.W. 2d 337 (1953).

Rental income from properties either purchased or inherited was not subject to earnings tax. *Bachman v. City of St. Louis,* 868 S.W. 2d 199 (Mo. App. E.D. 1994).

5.22.020 Tax imposed.

A tax for general revenue purposes of one percent is imposed on:

A. Salaries, wages, commissions and other compensation earned after July 31, 1959, by resident individuals of the City, including the entire distributive share of any member of a partnership or association, less the amount thereof, if any, which may be shown to have been taxed under the provisions hereof to said association or partnership;

B. Salaries, wages, commissions and other compensation earned after July 31, 1959, by nonresident individuals of the City for work done or services performed or rendered in the City;

C. The net profits earned after July 31, 1959, of associations, businesses or other activities conducted by a resident or residents;

D. The net profits earned after July 31, 1959, of associations, businesses or other activities conducted in the City by a nonresident or nonresidents;

E. The net profits earned after July 31, 1959, by all corporations as a result of work done or services performed or rendered, and businesses or other activities conducted in the City.

The tax shall first be levied, collected and paid with respect to that portion of salaries, wages, commissions, other compensation and net profits earned after July 31, 1959, and prior to January 1, 1960, and thereafter the tax shall be levied, collected and paid on the basis of the calendar year. Where the fiscal year of any person, association, business or corporation differs from the calendar year, the tax shall first be applied to that portion of the net profits for the fiscal year as shall be earned after July 31, 1959, and thereafter on the fiscal year basis.

In assessing the tax provided by this section, no deduction shall be allowed for federal or state income taxes.

Salaries, wages, commissions, other compensation and net profits earned on and prior to July 31, 1959, shall be subject to tax at the rate of one-half of one percent in the manner and to the extent authorized by ordinance prior to July 24, 1959. (1948 C., Ch. 23, §§ 141, 142; 1960 C., § 145.020; 1994 C., § 5.22.020; Ord. No. 49540, § 1, 1959; Ord. No. 48875, § 2, 1958; Ord. No. 47063, § 2, 1954; Ord. No. 46222, § 2, 1952.)

City Counselor Ops.: 7625, 8212, 8241, 9162, 9344, 9544, 9628A, 9642, 9648, 9828, 9940, 10221, 10464

Cases:

Supplemental unemployment benefits paid to former employees of General Motors pursuant to collective bargaining agreement between the company and the United Auto Workers were not "earnings" subject to taxation under this ordinance. *Adams v. City of St. Louis,* 563 S.W. 2d 771 (1978).

Rental income from properties either purchased or inherited was not subject to earnings tax. *Bachman v. City of St. Louis,* 868 S.W. 2d 199 (Mo. App. E.D. 1994).

5.22.023 Continuation of earnings tax.

The earnings tax of 1% imposed by the City of St. Louis shall be continued for a period of five (5) years commencing January 1, 2017. (1994 C., § 5.22.023; Ord. No. 70184, § 1, 1-22-2016; Ord. No. 68815, 12-13-2010)

Editor's Note:

The provisions of this § 5.22.023 passed at a general election dated April 5, 2016.

Cases:

A statute requiring reauthorization of city earnings tax every five years by vote of the people did not constitute an appropriation of funds or a state mandated increased level of activity or service, and did not amend a city charter contrary to Mo. Const. art. VI, § 20. *Dujakovich v. Carnahan*, 370 S.W.3d 574 (Mo.banc 2012)(construing RSMo 92.210-92.300, applicable to City of St. Louis as well as Kansas City).

5.22.025 Earnings tax credit.

Each individual, association, business, corporation, fiduciary or other entity, whose net profits are subject to the tax imposed by ordinances presently codified as this Chapter 5.22, shall, on any return required to be filed by Section 5.22.050 of this chapter, be allowed to claim as a credit against the earnings tax which would otherwise be due on such taxpayer's account an amount equal to twenty percent (20%) of any amount paid by such taxpayer in the period covered by such return as payroll expense tax pursuant to Chapter 5.23; provided, however, that in no event shall the credit exceed twenty-five percent (25%) of the tax on net profits due. (1994 C., § 5.22.025; Ord. No. 60879, § 1, 1988.)

5.22.030 Nonresident businesses.

The net profits subject to tax on any corporation, or of any association or business conducted in whole or in part by nonresidents of the City, in any case in which the work done, services performed or rendered, and business or other activities conducted are done, performed, rendered or conducted both within and without the City, shall be ascertained as follows:

A. If the taxpayer keeps its books and records in a manner as to show the portion of its net profits which is reasonably attributable to work done, services performed or rendered and business or other activity conducted in the City, then that portion of the net profits shall be subject to the tax.

B. If the books and records of the taxpayer are not kept in a manner so as to show the portion of its net profits which is reasonably attributable to work done, services performed or rendered, and business or other activity conducted in the City, then the portion of the entire net profits of the taxpayer subject to tax shall be ascertained by multiplying the entire net profits by an allocation percentage which shall be determined as follows:

1. The percentage which the average value of the taxpayer's real and tangible personal property within the City during the period covered by its return bears to the average value of all its real and tangible personal property wherever situated during the period shall first be ascertained.

2. The percentage which the gross receipts of the taxpayer derived from business within the City during the period covered by its return bear to the total of the gross receipts wherever derived, shall then be ascertained. Gross receipts derived from business within the City shall be the amount of gross receipts from: (a) Sales (including also sales of services), except those negotiated or affected in behalf of the taxpayer by agents or agencies, chiefly situated at, connected with, or sent out from premises for the transaction of business owned or rented by the taxpayer outside the City; and (b) Rentals or royalties from property situated, or from the use of patents, within the City.

3. The percentage which the total wages, salaries and other personal service compensation during the period covered by its return, of its employees within the City, except general executive officers, bears to the total wages, salaries and other personal service compensation during the period of all of the taxpayer's employees within and without the City, except general executive officers, shall then be ascertained.

4. The percentages determined in accordance with Subsections 1, 2 and 3, as applicable to the particular taxpayer's business, shall be added together and the total obtained shall be divided by the number of percentages used in arriving at the total. The result obtained shall be the allocation percentage.

C. If any taxpayer believes that the methods of allocation or apportionment prescribed in this section have operated or will operate to subject it to taxation on a greater portion of its net profits than is reasonably attributable to work done, services performed or rendered, and business or other activities conducted in the City, it shall be entitled to file with the Collector a statement of its objections and of the alternative method of allocation or apportionment it believes to be proper under the circumstances and in the manner and with the detail and proof and within a time the Collector may reasonably prescribe. If the Collector concludes that the methods of allocation or apportionment pro-

vided in this section are in fact inapplicable or inequitable, he shall redetermine the net profits subject to tax by such other method of allocation or apportionment as seems best calculated to assign to the City for taxation the portion of the net profits reasonably attributable to work done, services performed or rendered, and business or other activities conducted in the City, not exceeding, however, the amount which would be arrived at by the application of the methods of allocation or apportionment provided in this section. (1948 C., Ch. 23, § 143; 1960 C., § 145.030; 1994 C., § 5.22.030; Ord. No. 47063, § 3, 1954; Ord. No. 46222, § 3, 1952.)

City Counselor Ops.: 8449, 9080, 9086, 9119, 9648, 9722, 10014

5.22.040 Nonresident individual.

The earnings subject to tax of any nonresident individual, in any case in which the work done, services performed or rendered, and business or other activities conducted are done, performed, rendered or conducted both within and without the City, shall be ascertained as follows:

A. If the amount of the earnings depends on the volume of business transacted by the individual, then the portion of the earnings subject to tax shall be the portion of the earnings which the volume of business transacted by the individual in the City bears to the volume of business transacted by him within and without the City.

B. In all other cases, the portion of the earnings subject to tax shall be the portion of the earnings which the total number of working days employed within the City bears to the total number of working days within and without the City.

C. If it is impracticable to apportion the earnings as in Subsections A and B either because of the peculiar nature of the services of the individual, or on account of the unusual basis of compensation, or for any other reason, then the amount of the earnings reasonably attributable to work done, or services performed or rendered, in the City, shall be determined in accordance with rules and regulations adopted or promulgated by the Collector for the purpose. (1948 C., Ch. 23, § 144; 1960 C., § 145.040; 1994 C., § 5.22.040; Ord. No. 47063, § 4, 1954; Ord. No. 46222, § 4, 1952.)

City Counselor Ops.: 8241

5.22.050 Return—Payment.

Except as provided in this section, each individual, association, business, corporation, fiduciary, or other entity, whose earnings or profits are subject to the tax imposed by this chapter shall, on or before April 15 of each year, unless an extension is granted by the Collector, make and file with the Collector a return, on a form obtainable from the Collector, setting forth the aggregate amount of salaries, wages, commissions, compensation or net profits earned by the taxpayer during the preceding calendar year and subject to the tax, together with other pertinent information the Collector may require.

Where the return is made for a fiscal year different from a calendar year, the return shall be made within the following period of time; namely, by the fifteenth day of the fourth month following the end of the fiscal year, unless an extension is granted by the Collector. The return shall also show the amount of the tax imposed by this chapter on earnings and profits. The taxpayer making the return shall, at the time of filing thereof, pay to the Collector the amount of tax shown as due thereon.

Where any portion of the tax so due shall have been deducted at the source and shall have been paid to the Collector by the employer making the deduction, credit for the amount so paid shall be deducted from the amount shown to be due, and only the balance, if any, shall be due and payable at the time of the filing of the return. No return shall be required of any taxpayer who has received only wages, salaries, commissions or other compensation and from which the tax has been withheld at the source, as provided in this chapter. The failure of any employer or any taxpayer to receive or procure a return form shall not excuse the employer or taxpayer from making a return or paying the tax due. (1948 C., Ch. 23, § 145; 1960 C., § 145.050; 1994 C., § 5.22.050; Ord. No. 56913, § 1, 1975; Ord. No. 49928, § 1, 1960; Ord. No. 47063, § 5, 1954; Ord. No. 46222, § 5, 1952.)

City Counselor Ops.: 9940, 10006

5.22.060 Withholding.

A. Every employer within or doing business within the City who employs one or more persons on salary, wage, commission, or other compensation basis, shall deduct at the time when earned irrespective of when paid, the tax of 1% of salaries, wages, commissions, or other compensation due by the employer to the employee and subject to tax, and shall quarterly make his return and pay to the Collector, on or before the last day of July, October, January and April of each year, the amount of taxes so deducted for the three calendar

months next preceding the month in which the return is required to be filed. Said return shall be on a form or forms obtainable from the Collector and shall be subject to the rules and regulations prescribed therefor by the Collector. Every such employer shall furnish each employee with a statement of the amount of the tax withheld. The failure of any employer to deduct or withhold at the source the amount of tax due from the employees shall not relieve the employee from the duty of making a return and paying the tax.

B. Any employer, as defined herein, is required to make the deduction and withholding provided for in Subsection A of this section from all employees who are subject to the earnings tax by reason of their residence notwithstanding the fact that any such employee is employed exclusively outside the limits of the City and irrespective of the fact that the employer's payroll records may be located outside the City.

C. For purposes of this section the term "employer within the City" shall mean any employer who shall: (1) have a permanent situs in the City or (2) shall for a continuous period of time conduct its business activity at a fixed location within the City or (3) use on a regular but periodic basis physical facilities located in the City for the conducting of its business.

D. Employers who do not maintain a permanent office or place of business in the City, but who are subject to tax on net profits attributable to the City, under the method of allocation provided for in this section, are considered to be employers within the City and subject to the requirements of withholding.

E. From and after April 1, 1983, any employer who is required to deduct and withhold the City earnings taxes from employees' salaries, wages, commissions, or other compensation, shall remit to the Collector of Revenue all earnings taxes withheld since the last day of the period for which such employer filed or was required to file a quarterly return, within fifteen days after the last day of any calendar month in which earnings taxes withheld, less the amount allowed by law as compensation for collecting and remitting the tax, equal or exceed one thousand five hundred dollars ($1,500.00), if such calendar month is the first or the second month of a three-month period for which a quarterly return is required to be filed.

Example 1: Net taxes withheld in October are $1,200.00. Net taxes withheld in November are $1,600.00. No remittance is required by this subsection for October. The employer must remit $2,800.00 by November 15th.

Example 2. Net taxes withheld in October are $1,200.00. Net taxes withheld in November are $1,200.00. No remittance is required by this subsection for either month.

Example 3. Net taxes withheld in December are $1,600.00. No remittance is required by this subsection. The employer must remit all net taxes withheld in October, November and December, with his quarterly return, by the last day of January. (1948 C., Ch. 23, § 146; 1960 C., § 145.060; 1994 C., § 5.22.060; Ord. No. 58883, § 1, 1983; Ord. No. 58757, § 2, 1983; Ord. No. 57116, § 1, 1976; Ord. No. 55946, § 1, 1971; Ord. No. 55648, § 1, 1970; Ord. No. 55395, § 1, 1969; Ord. No. 49540, § 2, 1959; Ord. No. 47503, § 1, 1955; Ord. No. 47063, § 6, 1954; Ord. No. 46222, § 6, 1952.)

RSMo:

RSMo 92.350 (2016) State and political subdivisions to deduct earnings tax-compensation for collecting

Ops. Atty. Gen.:

School districts in St. Louis County must deduct the St. Louis city earnings tax from the wages and salaries of their employees who are residents of the city, and remit the amount withheld to the St. Louis city collector. Mo. 148, August 22, 1972.

City Counselor Ops.: 8631, 9245, 10000, 10054, 10422

5.22.070 State's compensation.

As required in RSMo 92.350 (1978), the State of Missouri and all its political subdivisions or instrumentalities shall be entitled to deduct and retain one and one-half percent of the total amount of the tax collected under this chapter as compensation for collecting and remitting the tax. (1948 C., Ch. 23, § 147; 1960 C., § 145.070; 1994 C., § 5.22.070; Ord. No. 59172, § 2, 1984; Ord. No. 50624, § 1, 1961; Ord. No. 47063, § 7, 1954; Ord. No. 46222, § 7, 1952.)

RSMo:

RSMo 92.350 (2016) State and political subdivisions to deduct earnings tax—compensation for collecting

5.22.080 Reconciliation report.

Every employer within the City shall file a certified report, on a form prescribed by the Collector, on or before January 30 of each year at the office of the Collector of Revenue, which shall provide a reconciliation of earnings taxes reported as being withheld from employees in the previous calendar year. For purposes of this reconciliation the employer as part of this report

shall submit a statement listing the name of each employee from whom earnings taxes have been withheld in the preceding calendar year, his Social Security number, last known address, gross amount of compensation paid during the year and the amount of City earnings tax withheld. The employer may in lieu of submitting a listing submit copies of all certificates furnished the federal and state taxing authorities for the year, which show the compensation received by an employee and City earnings tax withheld. Any employer who shall fail to timely file the report required by this section shall be deemed guilty of a misdemeanor and of violating the City Code. (1960 C., § 145.075; 1994 C., § 5.22.080; Ord. No. 56427, § 1, 1973.)

5.22.090 Nontaxable income.

The income referred to in RSMo 143.120 to 143.150 (1949), as not being subject to the state income tax, any income received in the form of dividends, and any income received by a person in the form of or related to the grant, vesting or exercise of stock options, performance shares or performance-based stock-related incentive plans shall not be taxable under this chapter. (1948 C., Ch. 23, § 148; 1960 C., § 145.080; 1994 C., § 5.22.090; Ord. No. 65094, § 1, 2000; Ord. No. 64586, § 1, 1999; Ord. No. 47063, § 8, 1954; Ord. No. 46222, § 8, 1952.)

City Counselor Ops.: 8871, 9828

5.22.100 Enforcement.

It shall be the duty of the Collector to collect and receive the tax imposed by this chapter. In addition to keeping the records now required by law and paying over the proceeds from the collection of taxes to the Treasurer of the City, as now provided by law, the Collector shall keep an accurate and separate account of all tax payments received by him, showing the name and address of the taxpayer and the date of the payments. The Collector is charged with the enforcement of the provisions of this chapter and is empowered to adopt and promulgate and to enforce rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including provisions for the reexamination and correction of returns and payments alleged or found to be incorrect or as to which an overpayment or underpayment is claimed or found to have occurred. The Collector or any agent or employee authorized in writing by him is authorized to examine the books, papers and records of any employer or supposed employer, or of any taxpayer or supposed taxpayer, in order to verify the accuracy of any return made, or if no return was made, to ascertain the tax imposed by this chapter.

Every employer or supposed employer, or taxpayer or supposed taxpayer, is directed and required to give to the Collector or his duly authorized agent or employee the means, facilities and opportunity for examinations and investigations as are authorized. The Collector is authorized to examine any person concerning any income which was or should have been returned for taxation and to this end may order the production of books, papers and records and the attendance of all persons before him, whether as parties or witnesses, whom he believes to have knowledge of income. The refusal of examination by any employer or taxpayer shall be a violation of this chapter. Any information obtained as a result of any return, investigation, hearing or verification required or authorized by this chapter, shall be confidential except for official purposes and except in accordance with judicial order. Any person otherwise divulging such information shall, upon conviction thereof, be guilty of a misdemeanor and shall be subject to a fine of not more than five hundred dollars or imprisonment for not more than six months or both fine and imprisonment for each offense. (1948 C., Ch. 23, § 149; 1960 C., § 145.090; 1994 C., § 5.22.100; Ord. No. 47063, § 9, 1954; Ord. No. 46222, § 9, 1952.)

City Counselor Ops.: 8201, 9043, 9082

5.22.110 Interest and penalties on unpaid taxes.

All taxes imposed by this chapter and remaining unpaid after they have become due shall bear interest at the rate of one percent per month, or fraction thereof and the delinquent taxpayer shall be liable for the tax and interest. In addition thereto any taxpayer failing to pay the taxes required by this chapter shall be liable for a penalty of five percent of the amount of the unpaid tax for each month or fraction of a month during which failure to pay continues, with the penalty not to exceed twenty-five percent of the total tax shown to be due. (1948 C., Ch. 23, § 150; 1960 C., § 145.100; 1994 C., § 5.22.110; Ord. No. 55420, § 1, 1969; Ord. No. 47063, § 10, 1954; Ord. No. 46222, § 10, 1952.)

5.22.120 Taxes, interest and penalties recoverable.

All taxes imposed by this chapter, together with all interest and penalties, shall be recoverable by the City

as other debts of like amounts are recoverable. (1948 C., Ch. 23, § 151; 1960 C., § 145.110; 1994 C., § 5.22.120; Ord. No. 47063, § 11, 1954; Ord. No. 46222, § 11, 1952.)

5.22.130 Penalty for violation.

Any person or taxpayer who shall fail, neglect or refuse to make any return required by this chapter, or any employer who shall fail, neglect or refuse to withhold or pay over to the City any amount of tax subject to withholding under this chapter, or any person or taxpayer who shall refuse to permit the Collector, or his duly authorized deputy or agent, to examine his books, records or papers, or who shall knowingly make an incomplete, false or fraudulent return, or who shall attempt to do anything whatsoever to avoid the full disclosure of the amount of earnings or profits, shall be guilty of a misdemeanor and shall be subject to a fine of not more than five hundred dollars or to imprisonment for not more than six months, or to both fine and imprisonment. (1948 C., Ch. 23, § 152; 1960 C., § 145.120; 1994 C., § 5.22.130; Ord. No. 47063, § 12, 1954; Ord. No. 46222, § 12, 1952.)

5.22.140 Tax evasion.

Any person or taxpayer who willfully fails to pay or attempts in any manner to defeat or evade any tax imposed under provisions of this chapter shall be deemed to have violated the Revised Code of the City. (1960 C., § 145.130; 1994 C., § 5.22.140; Ord. No. 56053, § 1, 1971.)

5.22.150 Promoters, booking agents, managers and publishers—Penalty.

A. Any person or taxpayer who shall be or act as a promoter, booking agent, manager or publisher and arrange for the display of any visual or literary art, or for the appearance of any entertainer, speaker, performing artist, athlete, entertainment, artistic or theatrical act or performance, or any athletic event, or for the publication of any work in the City and shall make any payment arising from any such display, appearance or publication shall for purposes of collection of the earnings tax withhold and pay over to the Collector of Revenue one percent (1%) of the gross amount so paid.

B. The Collector of Revenue is hereby authorized to accept claims for refund upon the submission of verification of expenses of any such visual or literary artist, entertainer, speaker, performing artist, athlete, entertainment, artistic or theatrical act, or athletic team who has been subject to withholding pursuant to Subsection A of this section.

C. Any person or taxpayer required to withhold and pay over earnings tax pursuant to Subsection A of this section may, in lieu of complying with the requirements of the subsection, file annually with the Collector of Revenue a Schedule "G" Form E-6 indicating the name of each person, act or team paid, and their respective complete address, tax payer identification number, and gross amount paid. This shall be filed annually no later than March 1st of the following year; provided, however, that if such Schedule "G" Form E-6 is not filed in a timely manner then such person or taxpayer must follow procedure as prescribed in Subsection A of this section.

D. Penalty Clause.

1. Any person or taxpayer who shall fail, neglect or refuse to withhold and pay over to the City any amount of earnings tax required to be withheld, or who shall fail, neglect or refuse to make any return/report required to be filed by the provisions of this section, or any person or taxpayer who shall refuse to permit the Collector of Revenue, or his duly authorized deputy or agent, to examine his books, records or papers, or who shall knowingly make an inaccurate, false or fraudulent return/report, or who shall attempt to do anything whatsoever to avoid the full disclosure of the amount of payments, earnings or profits, shall be deemed guilty of a misdemeanor and upon conviction shall be subject to a fine of not more than $500.00 or to imprisonment for not more than 90 days, or to both fine and imprisonment.

2. In addition to any penalty that may be imposed by a court of competent jurisdiction, failure to complete and file any return/report required by the provisions of this section could result in expense deductions for payments being disallowed and tax liability refigured. (1960 C., § 145.190; 1994 C., § 5.22.150; Ord. No. 62516, §§ 2, 3, 1992; Ord. No. 57058, § 1, 1975.)

5.22.160 Exemption.

No earnings tax shall be due or payable upon any amount deferred or contributed by or for any taxpayer after July 1, 1996, under any form of deferred compensation arrangement which is not subject to current taxation for purposes of federal and state income taxes. (1994 C., § 5.22.160; Ord. No. 63798, § 1, 1996.)

Cases:

Charter city could subject employee contributions to deferred compensation or deferred income plans to its earnings tax. *Hopkins v. City of Kansas City,* 894 S.W.2d 156 (Mo.banc 1995).

Chapter 5.23

PAYROLL EXPENSE TAX

Editor's Note:

Ordinance 60643, codified in Chapter 8.07 of the Revised Code of Ordinances, City of St. Louis, imposes a graduated business license tax ranging from one hundred fifty dollars to twenty-five thousand dollars per year, depending on the number of St. Louis employees on all merchants, manufacturers, businesses, avocations, pursuits and callings that are not exempt from the payment of licenses by law.

The passage of the payroll expense tax submitted to the voters under Ordinance 60737, codified in Chapter 5.23 of the Revised Code of Ordinances, City of St. Louis, and the graduated business license tax submitted to the voters under Ordinance 60643 and codified in the aforementioned Chapter 8.07, activates the provisions of Ordinance 60735 which pertains to taxes and fees imposed on businesses in St. Louis, and repeals Ordinance 60343, pertaining to a special employer's tax and the provisions of certain ordinances imposing various business license taxes.

Sections:

5.23.010	**Definitions.**
5.23.020	**Tax imposed.**
5.23.030	**Determination of tax attributable to City.**
5.23.040	**Applicability of tax.**
5.23.050	**Exemptions.**
5.23.060	**When due and payable—Filing of return.**
5.23.070	**Request for financial information.**
5.23.080	**Duties of Collector—Recordkeeping—Enforcement and administration.**
5.23.090	**Unpaid tax—Liability—Penalty.**
5.23.100	**Recoverability of tax.**
5.23.110	**Failure, refusal or neglect to make return—Penalty for violation.**
5.23.120	**Failure to pay—Attempt to defeat or evade tax—Penalty for violation.**
5.23.130	**Tax payment protest—Impoundment of tax portions protected—Investment of impounded taxes.**
5.23.140	**Payment of tax not required of certain entities.**

5.23.010 Definitions.

As used in this chapter, the following terms have the following meanings:

A. "Business" means any activity, enterprise, profession, trade or undertaking of any nature conducted or engaged in, or ordinarily conducted or engaged in, with the object of gain, benefit or advantages, whether direct or indirect, to the taxpayer or to another or others. The term shall include subsidiary or independent entities which conduct operations for the benefit of others and at no profit to themselves, nonprofit businesses, and trade associations.

A person shall be deemed to be engaged in business, who in return for rental income, rents, leases or hires real or personal property to others. A person shall not be deemed to be engaged in business solely by reason of dividend or interest income from passive investments.

B. "City" means the City of St. Louis, Missouri.

C. "Collector" means the Collector of Revenue of the City.

D. "Employee" means and includes any individual in the service of an employer, under an appointment or contract of hire or apprenticeship, express or implied, oral or written, whether lawfully or unlawfully employed. For purposes of this tax, and irrespective of the common law tests for determining the existence of an independent contractor relationship, an individual performing work or service for compensation, shall be deemed to be an employee of the person for whom the work or service is performed unless:

1. Such individual has been and will continue to be free from control or direction over the performance of such work or service, both under his appointment or contract of hire or apprenticeship and in fact; and

2. Such work or service is either outside the usual course of the business of the person for which such service is performed or such service is performed outside of all the places of business of the person for whom such service is performed; and

3. Such individual is customarily engaged in an independently established trade, occupation, profession or business.

For purposes of this tax, any member of or person having an ownership interest in a partnership shall be deemed an "employee" of such partnership.

E. "Individual" means a natural person, a human being, as distinguished from an artificial person such as a corporation or political subdivision.

F. "Partnership" means a partnership, limited partnership, or any other form of unincorporated business or enterprise, owned by two or more persons.

G. "Payroll expense" means the compensation earned irrespective of when paid, including salaries, wages, commissions, bonuses, and other compensation, to an individual who, during any tax year, performs work or renders service, in whole or in part in the City; and if more than one individual during any tax year performs work or renders service in whole or in part in the City, the term "payroll expense" shall mean the total compensation earned irrespective of when paid, including salaries, wages, commission, bonuses and other compensation, to all such individuals. The term "payroll expense" for partnerships shall also mean, in addition to the foregoing, the entire amount of distributions made to any member or person having an ownership interest in such partnership.

H. "Person" means any natural person, receiver, administrator, executor, assignee, trustee in bankruptcy, trust, estate, firm, co-partnership, partnership, joint venture, club, company, joint stock company, business trust, domestic or foreign corporation, association, syndicate, society, or any group of individuals acting as a unit, whether mutual, cooperative, fraternal, nonprofit or otherwise, and any natural person, who as an individual or with a spouse, owns 51 percent or more of the capital stock of a corporation obligated to file a return and pay tax pursuant to this chapter; and in addition, is a person with the power to control the fiscal decision-making process by which the corporation allocates funds to creditors in preference to its tax obligations under the provisions of this chapter. A person as defined herein, who is also an officer or director of a corporation obligated to file returns and pay tax pursuant to this chapter, shall be presumed to be a person with the power to control the fiscal decision-making process. Whenever the term "person" is used in any clause prescribing and imposing a penalty, the term as applied to partnerships shall mean the owners or part owners thereof, and as applied to a corporation, the officers thereof.

I. "Taxpayer" means a person required hereunder to file a return or to pay a tax. (1994 C., § 5.23.010; Ord. No. 60737, § 1, 1988.)

5.23.020 Tax imposed.

A. There is hereby imposed, subject to the approval of the qualified voters as hereinafter provided, a tax for general revenue purposes upon every person not exempt under Section 5.23.050, hereof, who, in connection with his business, engages, hires, employs or contracts with one or more individuals as employee, to perform work or render services in whole or in part within the City. The incidence of such tax shall be solely upon the person subject to the tax hereunder and shall not be transferred directly or indirectly to the employee in any circumstances.

B. The amount of such tax shall be one-half of one percent (0.5%) of the payroll expense of such person attributable to the City as provided in Section 5.23.030 hereof.

C. This chapter is not intended to nor shall it be construed or administered as requiring any license or permit whatsoever, nor as a means to regulate the conduct of any business whatsoever, nor shall payment of the payroll expense tax be a condition precedent to engaging in any business whatsoever within the City or for or on the privilege of following or carrying on or conducting any profession or calling whatsoever, any ordinance provision to the contrary notwithstanding. The tax imposed hereunder, subject to the approval of the qualified voters, is imposed for general revenue purposes and in order to require commerce and the business community to bear a fair share of the cost of local government. (1994 C., § 5.23.020; Ord. No. 60737, § 2, 1988.)

Cases:

Payroll tax ordinance held constitutional in light of Mo.Const. art. VI, § 19(a), concerning powers of home rule charter cities. *Neuner v. City of St. Louis*, 536 S.W.3d 750 (Mo.App.E.D. 2017).

5.23.030 Determination of tax attributable to City.

Where payroll expense is incurred by reasons of work performed or services rendered by an individual, as employee, partly within and partly without the City, the portion of such payroll expense attributable to the City (and subject to tax hereunder) shall be determined as follows:

A. If the amount of such payroll expense depends on the volume of business transacted by such individual then the portion of such payroll expense attributable to the City shall be the portion of such payroll expense which the volume of business transacted by such individual in the City bears to the volume of business transacted by him within and without the City.

B. In all other cases, the portion of such payroll expense attributable to the City shall be the portion of such payroll expense which the total number of working hours employed within the City bears to the total number of working hours within and without the City.

C. In all other cases, the portion of such payroll expense attributable to the City shall be the portion of such payroll expense which the total number of working hours employed within the City bears to the total number of working hours within and without the City.

D. If it is impracticable to apportion such payroll expenses as aforesaid either because of the peculiar nature of the service of such individual, or on account of the unusual basis of compensation, or for any other reason, then the amount of such payroll expenses reasonably attributable to work performed or service rendered, in the City, shall be determined in accordance with rules or regulations adopted or promulgated by the Collector for the purpose.

If the Collector determines that the percentage of payroll expenses attributable to the City, for any one or more taxpayers, is a relatively stable percentage, the Collector is authorized to (but need not in any case) establish that percentage as a prima facie percentage of payroll expense attributable to the City; provided, however, that the Collector shall condition the establishment of such fixed percentage upon the obligation of the taxpayer to report immediately to the Collector any significant change in his mode of business which might have some effect upon the portion of his payroll expense which is attributable to the City; and provided further, that any such fixed percentage established by the Collector is revocable by the Collector at any time. (1994 C., § 5.23.030; Ord. No. 60737, § 7, 1988.)

5.23.040 Applicability of tax.

This tax shall not apply to any person unless such person is doing business within the City. A person is doing business within the City, within the meaning of this chapter, if he engages, hires, employs or contracts with one or more individuals, as employee, to perform work or render services in whole or in part with the City and, in addition, either:

A. Such person maintains a fixed place of business within the City; or

B. An employee maintains a fixed place of business within the City for the benefit or partial benefit of such persons; or

C. Such person or employee owns or leases real property within the City for such person's business purposes; or

D. Such person or employee regularly maintain a stock of tangible personal property in the City for sale in the ordinary course of his business; or

E. Such person employs or loans capital on property within the City; or

F. Such person or his employee conducts continuous solicitation of business within the City; or

G. Such person or his employees perform work or render services in the City for not less than seven working days per year for all such employees; or

H. Such person or his employee utilizes the streets within the City in connection with the operation of motor vehicles for business purposes. (1994 C., § 5.23.040; Ord. No. 60737, § 8, 1988.)

5.23.050 Exemptions.

Religious and charitable organizations and institutions, not-for-profit civic, social service or fraternal organizations, not-for-profit hospitals, not-for-profit educational institutions, the State of Missouri and agencies or departments thereof, and the United States of America and agencies or departments thereof, shall be exempt from taxation under this chapter. (1994 C., § 5.23.050; Ord. No. 60737, § 9, 1988.)

5.23.060 When due and payable—Filing of return.

The tax imposed herein shall become due and payable on or before the last day of July, October, January and April of each year, in an amount of the tax due for the three calendar months next preceding the month in which the return is to be filed. Such return shall be on a form or forms obtainable from the Collector and shall be subject to the rules and regulations prescribed therefor by the Collector. (1994 C., § 5.23.060; Ord. No. 60737, § 10, 1988.)

5.23.070 Request for financial information.

A. The Collector may, at his discretion, send any person a written request for financial information necessary for the purpose of verifying such persons' tax liability or tax-exempt status as claimed by the person on a return filed pursuant to Section 5.23.060 hereof. The request shall be mailed to the person's last known address as indicated in the Collector's records.

B. Each person to whom a written request for financial information has been sent pursuant to Sub-

section A of this section shall complete and return the form, with the information requested, to the Collector within 30 days of the date of the mailing of the written request. Said person shall provide such financial information that the Collector, in writing, has indicated is necessary to verify said person's tax liability or tax-exempt status. (1994 C., § 5.23.070; Ord. No. 60737, § 11, 1988.)

5.23.080 Duties of Collector—Recordkeeping—Enforcement and administration.

A. It shall be the duty of the Collector to collect and receive the tax imposed by this chapter. In addition to keeping the records now required by the law and paying over the proceeds from the collection of taxes to the Treasurer of the City, as now provided by law, the Collector shall keep an accurate and separate account of all payroll expense tax payments received by him, showing the name and address of the taxpayer and the date of the payments. The Collector is charged with the enforcement of the provisions of this chapter and is empowered to issue, adopt, promulgate and enforce forms, rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of this chapter, including, but not limited to, provisions for the reexamination and correction of returns and payments alleged or found to be incorrect or as to which an overpayment or underpayment is chimed or found to have occurred, and the making of refunds of taxes found to have been overpaid. The Collector or any agent or employee authorized in writing by him as authorized to examine the books, paper and records of any employer or supposed employer, or of any taxpayer or supposed taxpayer, in order to verify the accuracy of any return made, or if no return was made, to ascertain the tax imposed by this chapter, and such actual or supposed employer or taxpayer is hereby directed and required to permit such examination.

B. Every person subject or supposedly subject to tax hereunder, or taxpayer or supposed taxpayer, is directed and required to give to the Collector or his duly authorized agent or employee the means, facilities and opportunity for examinations and investigations as are authorized. The Collector is authorized to examine any such person or taxpayer concerning any amounts which were or should have been returned for taxation and to this end may order the production of books, papers and records and the attendance of all persons before him, whether as parties or witness, whom he believes to have knowledge of such amounts. The refusal of examination by any such person or taxpayer shall be a violation of this chapter. Any information obtained as a result of any return, investigation, hearing or verification required or authorized by this chapter, shall be confidential except for official purposes and except in accordance with judicial order. Any person otherwise divulging such information shall, upon conviction thereof, be guilty of a violation of this chapter and shall be subject to a fine of not more than five hundred dollars or imprisonment for not more than six months or both fine and imprisonment for each offense.

C. To the extent permitted by law, the Collector is authorized to enter into agreements with the Missouri Department of Revenue and/or the United States Internal Revenue Service, to facilitate enforcement or administration of the tax hereunder.

D. The compensation payable to the Collector for collecting the tax imposed by this chapter shall be that commission allowed by RSMo 82.650 (1986), for the collection of City Earnings Tax. (1994 C., § 5.23.080; Ord. No. 60737, § 12, 1988.)

5.23.090 Unpaid tax—Liability—Penalty.

Any tax imposed by this chapter and remaining unpaid after it has become due shall bear interest at the rate of one percent per month, or fraction thereof and the delinquent taxpayer shall be liable for the tax and interest. In addition thereto any taxpayer failing to pay any tax required by this chapter shall be liable for a penalty of five percent of the amount of the unpaid tax for each month or fraction of a month during which failure to pay continues, with the penalty not to exceed twenty-five percent of the total tax shown to be due. (1994 C., § 5.23.090; Ord. No. 60737, § 13, 1988.)

5.23.100 Recoverability of tax.

Any tax imposed by this chapter together with all interest and penalties, shall be recoverable by the City as other debts of like amounts as recoverable. (1994 C., § 5.23.100; Ord. No. 60737, § 14, 1988.)

5.23.110 Failure, refusal or neglect to make return—Penalty for violation.

Any person or taxpayer who shall fail, neglect or refuse to make any return required by this chapter or any person who shall fail, neglect or refuse to withhold or pay over to the City any amount of tax due under

this chapter, or any person or taxpayer who shall refuse to permit the Collector, or his duly authorized deputy or agent, to examine his books, records or papers, or who shall knowingly make an incomplete, false or fraudulent return, or who shall attempt to do anything whatsoever to avoid the full disclosure of the amount of payroll expense or partnership distributions subject to tax hereunder, shall be guilty of a violation of this chapter and shall be subject to a fine of not more than five hundred dollars or to imprisonment for not more than six months, or to both fine and imprisonment. (1994 C., § 5.23.110; Ord. No. 60737, § 15, 1988.)

5.23.120 Failure to pay—Attempt to defeat or evade tax—Penalty for violation.

Any person or taxpayer who willfully fails to pay or attempts in any manner to defeat or evade any tax imposed under provisions of this chapter shall be deemed to have violated this chapter and shall be subject to a fine of not more than five hundred dollars or to imprisonment for not more than six months, or to both fine and imprisonment. (1994 C., § 5.23.120; Ord. No. 60737, § 16, 1988.)

5.23.130 Tax payment protest—Impoundment of tax portions protected—Investment of impounded taxes.

A. Any taxpayer may protest all or any part of any tax assessed against him pursuant to this chapter. Any such taxpayer desiring to pay any such tax under protest must, at the time of paying such tax, file with the Collector a written statement setting forth the grounds on which his protest is based. Failure to file such a statement constitutes a waiver of any right that the taxpayer may possess to challenge the assessment and collection of the tax.

B. The Collector shall disburse to the Treasurer all portions of tax not so protested and shall impound in a separate fund all portions of tax not so protested and shall impound in a separate fund all portions of such taxes which are so protested. If any taxpayer so protesting his tax shall fail to commence an action in the Circuit Court for the recovery of the tax protested within 90 days after filing his protest, such protest shall be deemed abandoned and become null and void and of no effect, and the Collector shall then disburse to the Treasurer the tax impounded, and any interest earned thereon.

C. All protested tax RSMo shall be invested by the Collector in the same manner as assets specified in RSMo 30.260 for investment of state moneys. A taxpayer who is entitled to a refund of protested tax shall also receive the interest earned on the investment thereof. If the Collector is ordered to release and disburse all or any part of the tax paid under protest to the Treasurer, such tax shall be disbursed along with the proportional amount of interest earned on the investment of the tax due the City.

D. Whenever taxes have been impounded by the Collector under this section because of the filing of a protest, the City Counselor is authorized to apply to the Circuit Court for an order, pendete lite, requiring the disbursal of all or any part of such impounded tax funds to the City, on the ground that the City has the financial ability and legal capacity to repay such impounded tax funds in the event the court should make a subsequent decision ordering a refund to the taxpayer. (1994 C., § 5.23.130; Ord. No. 60737, § 17, 1988.)

5.23.140 Payment of tax not required of certain entities.

Nothing in this chapter shall be construed as requiring the payment of any tax by the United States of America, or by the State of Missouri, or by any municipal corporation, or by any of their subdivisions. (1994 C., § 5.23.140; Ord. No. 60737, § 19, 1988.)

Chapter 5.24

SALES TAX

Sections:

5.24.010 Imposed.
5.24.020 RSMo 144.010—144.510 adopted by reference.
5.24.030 House Committee Substitute adopted by reference.
5.24.040 Effective date—Time limit.
5.24.050 Extension.
5.24.060 Additional tax—Imposed.
5.24.070 Additional tax—Use.
5.24.080 Additional tax—House Substitute adopted by reference.
5.24.090 Public safety—Tax on all retail sales.

5.24.010 Imposed.

Under and by authority of House Committee Substitute for House Bill No. 243 enacted by the 75th General Assembly of the state effective October 13,

1969, there is imposed and levied a sales tax within the City on sales at retail of all tangible personal property and taxable services at retail which are subject to taxation by the state to be collected by the sellers of tangible personal property and taxable services and as provided under and pursuant to all the provisions of RSMo 144.010 to 144.510, as amended at a rate of one percent. (1960 C., § 144.010; 1994 C., § 5.24.010; Ord. No. 55497, § 1, 1970.)

Editor's Note:

The session law reference in the above section is to RSMo 94.500 et seq.

Ops. Atty. Gen.:

If a sale is made by a rental merchant in the City limits and the purchaser takes possession within the State of Missouri, the City sales tax applies. No. 188, July 28, 1970.

5.24.020 RSMo 144.010—144.510 adopted by reference.

The provisions of RSMo 144.010—144.510 (1959), as amended, where applicable are adopted and incorporated by reference as though set forth in full. (1960 C., § 144.020; 1994 C., § 5.24.020; Ord. No. 55497, § 2, 1970.)

5.24.030 House Committee Substitute adopted by reference.

The provisions, terms, conditions, duties and obligations contained and set forth in House Committee Substitute for House Bill No. 243 enacted by the 75th General Assembly of the state effective October 13, 1969, are accepted, adopted and incorporated by reference as though set forth in full. (1960 C., § 144.030; 1994 C., § 5.24.030; Ord. No. 55497, § 3, 1970.)

Editor's Note:

The session law reference in the above section is to RSMo 94.500 et seq.

5.24.040 Effective date—Time limit.

The provisions, terms, conditions, duties and obligations set forth in Sections 5.24.010—5.24.040 shall become effective in the manner and on the date provided in House Committee Substitute for House Bill No. 243 enacted by the 75th General Assembly of the state effective October 13, 1969, and upon the proposition for the sales tax being assented to by a majority of the qualified voters voting at the special election called and held pursuant thereto. The sales tax shall remain in effect and be collected for a period of two years only from its first effective date after which the tax shall expire, fail and be collected no longer unless, by ordinance enacted at least ninety days before the date of expiration, the tax is extended for an additional year and, from year to year thereafter in like manner. (1960 C., § 144.040; 1994 C., § 5.24.040; Ord. No. 55497, § 4, 1970.)

Editor's Note:

The session law reference in the above section is to RSMo 94.500 et seq.

5.24.050 Extension.

A. The sales tax of 1% imposed and levied by the City, in accord with its Ordinance 55497, and extended one additional year through March 22, 1973, by Ordinance 56154, and further extended one additional year through March 22, 1974, by Ordinance 56439, and further extended one additional year through March 22, 1975, by Ordinance 56609, and further extended one additional year to March 22, 1976, by Ordinance 56968 on sales at retail within the City of all tangible personal property and taxable personal property and taxable services at retail, which are subject to taxation by the state, is hereby extended and shall remain in full force and effect indefinitely, subject to the exemption in Subsection B of this section, until the sales tax is repealed or modified. Also the provisions, terms, conditions, duties and obligations of Ordinance 55497, Ordinance 56154, Ordinance 56439, Ordinance 56609 and Ordinance 56968 shall likewise remain in full force and effect indefinitely, subject to the exemption in Subsection B of this section, until said sales tax is repealed or modified.

B. All sales for domestic use of water service, electricity, electrical current, natural, artificial or propane gas, wood, coal or home heating oil shall be exempt from said 1% sales tax as of February 15, 1980. Domestic use shall be determined in the same manner as the determination of domestic use for exemption of such sales from the state sales tax under the provisions of RSMo 144.030. (1994 C., § 5.24.050; Ord. No. 57979, § 1, 1980; Ord. No. 57179, § 1, 1976; Ord. No. 56968, § 1, 1975; Ord. No. 56609, § 1, 1973; Ord. No. 56439, § 1, 1973; Ord. No. 56154, § 1, 1972.)

RSMo:

RSMo 144.010—144.527 (2016) Sales tax, generally

RSMo 94.500—94.550 (2016) City sales tax

Ops. Atty. Gen.:

The one percent City sales tax act in the City of St. Louis is a valid levy after March 22, 1973, thus the director of revenue is required to continue to collect the tax. No. 163, July 24, 1973.

McQuillin:

44.194 Sales and use taxes generally

5.24.060 Additional tax—Imposed.

Under and by authority of House Substitute for House Bill No. 65 enacted by the 77th General Assembly of the state and effective upon the approval and signature of the Governor of the state, there is imposed and levied within the City an additional sales tax of one-half of one percent on the receipts from the sale at retail of all tangible personal property and taxable services at retail which are subject to taxation by the state under provisions of RSMo 144.010 to 144.510. (1994 C., § 5.24.060; Ord. No. 56554, § 1, 1973.)

Editor's Note:

The session law referenced in the above section is RSMo 94.500 et seq. (2016).

For transportation trust fund, see Ch. 5.48

RSMo:

RSMo 94.600 et seq. (2016) Transportation sales tax

5.24.070 Additional tax—Use.

The revenue derived from the imposition of the tax imposed by Section 5.24.060 shall be used for purposes consistent with providing a sound public mass transportation system in accord with the provisions of House Substitute for House Bill No. 65 enacted by the 77th General Assembly of the state. (1994 C., § 5.24.070; Ord. No. 56554, § 2, 1973.)

Editor's Note:

The session law referenced in the above section is RSMo 94.500 et seq. (2016).

5.24.080 Additional tax—House Substitute adopted by reference.

The provisions, terms, conditions, duties and obligations contained and set forth in House Substitute for House Bill No. 65 enacted by the 77th General Assembly of the state are accepted, adopted and incorporated by reference as though set forth in full. (1994 C., § 5.24.080; Ord. No. 56554, § 3, 1973.)

Editor's Note:

The session law referenced in the above section is RSMo 94.500 et seq. (2016).

5.24.090 Public safety—Tax on all retail sales.

Under and by the authority of RSMo 92.500, there is hereby imposed, subject, however, to the approval of the qualified voters as hereinafter provided, a one-half of one percent sales tax on all retail sales made in the City of St. Louis, solely for the purpose of providing revenues for the operation of public safety departments, including police and fire departments, in addition to any and all other sales taxes allowed by law.

The provisions of RSMo 92.500 are adopted and incorporated herein by reference as if fully set forth.

The tax imposed pursuant to the provisions of this section shall be a tax on all retail sales made in the City of St. Louis which are subject to taxation under the provisions of RSMo 144.010 to 144.525.

All revenue returned to the City of St. Louis from the tax authorized by this section pursuant to RSMo 92.500 shall be deposited with the Treasurer of the City and all expenditures thereof shall be by an appropriation ordinance. (1994 C., § 5.24.090; Ord. No. 67774, §§ 1, 5—7, 2007.)

Chapter 5.25

PUBLIC TRANSIT SALES TAX

Sections:

5.25.010 Imposed.
5.25.020 Accounts.
5.25.030 Effective date.

5.25.010 Imposed.

An additional sales tax is hereby imposed upon all sellers for the privilege of engaging in the business of selling tangible personal property at retail or rendering taxable services at retail at the rate of one-quarter of one percent on the receipts from the sale at retail of all tangible personal property and the rendering of taxable service at retail within St. Louis City (for a total rate of one-half of one percent) to the extent and in the manner property and services are subject to taxation by the State of Missouri under the provisions of RSMo 144 and the rules and regulations of the Director of Revenue of Missouri issued pursuant thereto. (1994 C., § 5.25.010; Ord. No. 68658, § 1, 6-7-2010.)

5.25.020 Accounts.

The Treasurer of the City of St. Louis is hereby directed to create two separate accounts within the "City Public Transit Sales Tax Fund" to account for the

funds received from each of the one-quarter sales tax receipts in separate accounts with the City Public Transit Sales Tax Trust Fund; specifically, one account therein for the one-quarter of one percent sales tax imposed pursuant to Ordinance 63168 and approved by the voters on August 2, 1994 (Account ONE), and one account for the revenues from the one-quarter sales tax imposed pursuant to Ordinance 64111 and approved by the voters at the November 4, 1997 election (Account TWO). (1994 C., § 5.25.020; Ord. No. 68658, § 2, 6-7-2010.)

5.25.030 Effective date.

The tax imposed hereby shall be effective on July 1, 2010. (1994 C., § 5.25.030; Ord. No. 68658, § 3, 6-7-2010.)

Chapter 5.26

PROPERTY TAX

Sections:

Part I. Tax Levies

5.26.010 Municipal revenue levy.
5.26.020 Bonded indebtedness levy.
5.26.030 Library fund levy.
5.26.040 Art museum levy.
5.26.050 Exception from levies.
5.26.060 Zoological park levy.

Part II. Deferred Maintenance Improvements

5.26.100 Purpose.
5.26.110 Definitions.
5.26.120 Scope.
5.26.130 Applicability.
5.26.140 Application for postponement of assessment.
5.26.150 Postponement of assessment of deferred maintenance improvements.

PART I. TAX LEVIES

5.26.010 Municipal revenue levy.

Under and by authority of Section 3 of Article XVI of the Charter, there are levied the following rates of City taxes for the year 1980 on the assessed valuation of all real and personal property within the City made taxable by law for state purposes:

A. For municipal purposes, one dollar on each one hundred dollars assessed valuation of real and tangible personal property;

B. For county purposes within the City, thirty-five cents on each one hundred dollars assessed valuation of real and tangible personal property;

C. For hospital purposes, ten cents on each one hundred dollars assessed valuation of real and tangible personal property;

D. For public health purposes, two cents on each one hundred dollars assessed valuation of real and tangible personal property;

E. For recreation purposes, two cents on each one hundred dollars assessed valuation on real and tangible personal property. (1960 C., § 149.010, Ch. 150; 1994 C., § 5.26.010; Ord. No. 58080, § 1, 1980; Ord. No. 55072, § 1(part), 1968; Ord. No. 54723, § 1(part), 1967, Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, §(part), 1965; Ord. No. 52710, § 1(part), 1964; Ord. No. 51328(part), 1962; Ord. No. 50552, § 1(part), 1961; Ord. No. 49999, § 1(part), 1960; Ord. No. 49506, §§ 1, 2, 1959; Ord. No. 49504, § 1(part), 1959; Ord. No. 49011, § 2, 1958; Ord. No. 48435, § 1, 1957; Ord. No. 47908, § 1(part), 1956; Ord. No. 47523, § 1(part), 1955; Ord. No. 47066, § 1(part), 1954; Ord. No. 46594, § 1(part), 1953; Ord. No. 46127, § 1(part), 1952; Ord. No. 45713, § 1(part), 1951; Ord. No. 45343, § 1(part), 1950; Ord. No. 44983, § 1(part), 1949.)

Charter:

Art XVI § 3 Annual budget and tax rate

RSMo:

RSMo 92.010 (2016) Maximum levy rate

RSMo 92.020 (2016) Additional levy for library, hospital, recreational purposes authorized

Ops. Atty. Gen.:

Tangible personal property located in St. Louis city, owned by a resident of another county, must be assessed in the county where the owner resides and not in the City of St. Louis. No. 55, January 25, 1962.

City Counselor Ops.: 10479

Cases:

Lien of 1939 taxes, but not 1940 taxes, had attached when U.S. government took title to property in the city on June 16, 1939. *U.S. v. Certain Land in City of St. Louis,* 29 F. Supp. 92 (1939).

Collector of City of St. Louis was restrained by injunction from seizing and selling Washington University property to collect property taxes, on the ground that the corporate charter of the university exempts its property from taxation. *Washington University v. Baumann,* 180 S.W. 2d 403 (1937).

Where city increased all assessments except those on the estates of deceased persons and minors, held to be a

violation of the constitution which requires uniformity in taxation. *Columbia Terminal Co. v. Koeln,* 3 S.W. 2d 1021 (1928).

McQuillin:

44.41 Persons and property taxable

5.26.020 Bonded indebtedness levy.

Under and by authority of Section 4 of Article XVII of the Charter, there is levied on the assessed valuation on all subjects and objects of taxation, and all property within the City made taxable for state purposes, a tax for the year 1984 of nineteen cents (19¢) on each one hundred dollars assessed valuation of real and tangible personal property for the purpose of meeting the obligations of interest, expenses and principal of the following outstanding General Obligation Bond:

Under Article VI, Section 26 (b), (c) and (d) of the 1945 Constitution of the State of Missouri.

Amount Outstanding as of May 1, 1984	Ordinance	Date Approved
$805,000.00	52538	March 31, 1964
$550,000.00	53558	June 14, 1965
$2,500,000.00	54491	January 30, 1967
$2,230,000.00	54892	January 30, 1968
$300,000.00	55212	January 2, 1969
$2,070,000.00	55224	January 30, 1969
$4,735,000.00	55650	June 18, 1970
$2,590,000.00	55990	July 13, 1971
$600,000.00	56512	June 12, 1973
$3,300,000.00	56943	March 25, 1975

(1960 C., § 149.015; 1994 C., § 5.26.020; Ord. No. 59126, § 1, 1984; Ord. No. 58080, § 2, 1980; Ord. No. 57846, § 1, 1979; Ord. No. 55072, § 1(part), 1968; Ord. No. 54723, § 1(part), 1967; Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, § 1(part), 1965; Ord. No. 52710, § 1(part), 1964; Ord. No. 51328(part), 1962; Ord. No. 50552, § 1(part), 1961; Ord. No. 4999, § 1(part), 1960; Ord. No. 49504, § 1(part), 1959; Ord. No. 47908, § 1(part), 1956; Ord. No. 47523, § 1(part), 1955; Ord. No. 47066, § 1(part), 1954; Ord. No. 46594, § 1(part), 1953; Ord. No. 46127, § 1(part), 1952; Ord. No. 45713, § 1(part), 1951; Ord. No. 45343, § 1(part), 1950; Ord. No. 44983, § 1(part), 1949.)

Charter:

Art XVII § 4 Annual tax levy in connection with payment of bonded indebtedness

5.26.030 Library fund levy.

Under and by the authority of RSMo 182.150 (1961), there is levied on the assessed valuation of all subjects and objects of taxation and all property within the City made taxable for state purposes, a tax for the year 1968 of fifteen cents on each one hundred dollars assessed valuation of real and tangible personal property for the library fund. (1960 C., § 149.020; 1994 C., § 5.26.030; Ord. No. 55072, § 1(part), 1968; Ord. No. 54723, § 1(part), 1967; Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, § 1(part), 1965; Ord. No. 52710, § 1(part), 1964; Ord. No. 51329(part), 1962; Ord. No. 50552, § 2, 1961; Ord. No. 49999, § 2, 1960; Ord. No. 49504, § 2, 1959; Ord. No. 47908, § 2, 1956; Ord. No. 47523, § 2, 1955; Ord. No. 47066, § 2, 1954; Ord. No. 46594, § 2, 1953; Ord. No. 46127, § 2, 1952; Ord. No. 45713, § 2, 1951; Ord. No. 45343, § 2, 1950; Ord. No. 44983, § 2, 1949.)

5.26.040 Art museum levy.

Under and by the authority of RSMo 184.020 (1961) there is levied on the assessed valuation of all subjects and objects of taxation and all property within the City made taxable by law for state purposes, a tax for the year 1968 of four cents on each one hundred dollars of assessed valuation of real and tangible personal property for the art museum of the City. (1960 C., § 149.030; 1994 C., § 5.26.040; Ord. No. 55072, § 1(part), 1968; Ord. No. 54723, § 1(part), 1967; Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, § 1(part), 1965; Ord. No. 52710, § 1(part), 1964; Ord. No. 51330(part), 1962; Ord. No. 50552, § 3, 1961; Ord. No. 49999, § 3, 1960; Ord. No. 49504, § 3, 1959; Ord. No. 47908, § 3, 1956; Ord. No. 47523, § 3, 1955; Ord. No. 47066, § 3, 1954; Ord. No. 46594, § 3, 1953; Ord. No. 46127, § 3, 1952; Ord. No. 45713, § 3, 1951; Ord. No. 45343, § 3, 1950; Ord. No. 44983, § 3,1949.)

5.26.050 Exception from levies.

Nothing contained in Sections 5.26.010—5.26.040, shall apply to merchandise held by merchants and raw materials, merchandise, finished products, tools, machinery and appliances used or kept on hand by manufacturers. (1960 C., § 149.050; 1994 C., § 5.26.050; Ord. No. 55072, § 1(part), 1968; Ord. No. 54723, § 1(part), 1967; Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, § 1(part), 1965; Ord. No. 52710, § 1(part), 1964; Ord. No. 50552, § 5, 1961; Ord. No. 49999, § 5, 1960; Ord. No. 49504, § 5, 1959; Ord. No. 47908, § 5, 1956; Ord. No. 47523, § 5, 1955; Ord. No. 47066, § 5, 1954; Ord. No. 46594, § 5, 1953; Ord. No. 46127, § 5, 1952; Ord. No. 45713, § 5, 1951; Ord. No. 45343, § 5, 1950; Ord. No. 44983, § 5, 1949.)

5.26.060 Zoological park levy.

Pursuant to the mandate of RSMo 90.585, Senate Bill No. 7 of the First Extra Session of the 74th General

Assembly of the state, there is levied, in addition to the tax levied pursuant to RSMo 90.580, a tax of one cent on each one hundred dollars of assessed valuation on all taxable property in the City for the establishment, maintenance, rehabilitation or extension of the zoological park for the benefit of the public in the City as of January 1, 1968 for 1968 taxes. (1960 C. 149.040; 1994 C., § 5.26.060; Ord. No. 55075, § 1, 1968; Ord. No. 54723, § 1(part), 1967; Ord. No. 54200, § 1(part), 1966; Ord. No. 53552, § 1(part), 1965, Ord. No. 52710, § 1(part), 1964; Ord. No. 51331(part), 1962; Ord. No. 50552, § 4, 1961; Ord. No. 49999, § 4, 1960; Ord. No. 49504, § 4, 1959; Ord. No. 48436, § 1, 1957; Ord. No. 47908, § 4, 1956; Ord. No. 47523, § 4, 1955; Ord. No. 47066, § 4, 1954; Ord. No. 46594, § 4, 1953; Ord: 46127, § 4, 1952; Ord. No. 45713, § 4, 1951; Ord. No. 45343, § 4, 1950; Ord. No. 44983, § 4, 1949.)

Ops. Atty. Gen.:

For opinion concerning levy rates set by the board of the metropolitan park museum district of St. Louis, see No. 198, July 21,1972.

PART II. DEFERRED MAINTENANCE IMPROVEMENTS

5.26.100 Purpose.

The purpose of this part is to implement procedures to allow the office of the Assessor of the City to comply with RSMo 137.112 to 137.114 relating to postponed assessments of deferred maintenance improvements. (1994 C., § 5.26.100; Ord. No. 61526, § 2, 1989; Ord. No. 57973, § 1, 1980.) For procedures on redevelopment of blighted areas, see Ch. 11.06. For procedures on obsolete areas, see Ch. 1107.

5.26.110 Definitions.

A. "Deferred maintenance" means maintenance, repair, or replacements, as described in this section, to an existing dwelling consisting of any number of residential units, regardless of the classification of the real property for assessment purposes. The term "deferred maintenance" does not mean the addition of new construction to an existing building which increases the number of square feet of living space, nor does it mean maintenance, repairs, replacements, or new construction to a portion of an existing dwelling if such portion is used for commercial purposes.

B. Deferred maintenance includes the maintenance, repair or replacement of the following:

1. Broken floor joists, missing sections or collapsed interior floors;

2. Improperly installed or collapsing partitions, loose or missing plaster;

3. Broken or missing sash, frames or window panes;

4. Inadequate light or ventilation;

5. Missing or defective weather stripping or storm windows;

6. Missing or broken doors;

7. Collapsed or broken stairs, stairways or stair railings;

8. Missing or inoperative sanitary facilities;

9. Hazardous gas or electric installations;

10. Leaking sinks or defective drainboards;

11. Improperly installed, obstructed, broken or leaking piping, drains, vents or traps;

12. Inoperative or obsolete heating plant;

13. Electrical insulation missing or damaged, overloaded electrical circuits, improper electrical installations or connections;

14. Split or buckled basement support beams, open breaks or severe settlement in basement walls;

15. Inadequate exterior wall and attic insulation;

16. Open cracks or breaks in exterior building walls;

17. Holes or cracks through roof, defective roof flashing or skylights;

18. Collapsing or deteriorating chimneys;

19. Broken or missing gutters and downspouts;

20. Rotted fascia boards, eaves, soffits and cornices;

21. Collapsed or broken porch joists, columns or railings;

22. Rotted or broken porch flooring;

23. Missing or broken step treads; and

24. Exterior or interior paint.

C. Deferred maintenance includes substantial rehabilitation. Substantial rehabilitation is hereby defined to mean any rehabilitation or reconstruction activity, inclusive of items mentioned in Subsection B hereinabove, which amounts to a direct expenditure of more than one-quarter (¼) of the fair market value of the property being improved. Fair market value shall be determined by dividing the current assessed value of improvements only by nineteen percent (19%), for real property in subclass (1) and the current assessed value of residential improvement only by thirty-two percent (32%) for real property in subclass (3). The assessed value of land or commercial improvements shall not be included in this computation.

D. "Real property in subclass (1)" means as defined in RSMo 137.016.

E. "Real property in subclass (3)" means as defined in RSMo 137.016. (1994 C., § 5.26.110; Ord. No. 61526, § 4, 1989; Ord. No. 59455, § 1, 1985; Ord. No. 57973, § 2, 1980.)

5.26.120 Scope.

The provisions of this part shall apply only to the deferred maintenance of dwellings consisting of any number of residential units which is begun during the period January 1, 1978, to December 31, 1988, or which is begun during the period August 28, 1989, to December 31, 1998, regardless of the classification of the real property for assessment purposes. (1994 C., § 5.26.120; Ord. No. 61526, § 4, 1989; Ord. No. 57973, § 3, 1980.)

5.26.130 Applicability.

The provisions of this part shall apply only to dwellings located on real property within either:

A. An obsolete district created pursuant to Chapter 11.07 of the Revised Code of the City of St. Louis 1980, Annotated; or

B. A blighted area created pursuant to Chapter 11.06 of said Revised Code; provided, however, that any deferred maintenance activity undertaken on dwellings located within any such blighted area shall conform to the applicable construction and rehabilitation standards of any development plan adopted for such blighted area, if any. (1994 C., § 5.26.130; Ord. No. 61526, § 5, 1989; Ord. No. 59455, § 5, 1985; Ord. No. 59028, § 5, 1984; Ord. No. 57973, § 5, 1980.)

5.26.140 Application for postponement of assessment.

Any person owning residential property in an eligible area who desires to have assessment postponed on deferred maintenance activities shall, prior to commencement of improvements, file an application with the office of the Assessor of the City on forms prepared by that office. Said application shall include:

A. Permit(s) issued by the appropriate City agency or agencies for the maintenance, repair or replacement of items required by the Existing Structures Code, Electrical, Plumbing, Air Pollution Control, Building Codes or any other property code or Historic District Ordinance of the City of St. Louis;

B. The specific maintenance activities to be undertaken;

C. The date the maintenance activities, as defined above, are to begin, and an estimated date of completion;

D. The estimated cost of the maintenance activities with copies of signed contracts; and

E. A certified copy of paid real estate taxes. (1994 C., § 5.26.140; Ord. No. 61526, § 6, 1989; Ord. No. 59028, § 4(part), 1984; Ord. No. 57973, § 4(part), 1980.)

5.26.150 Postponement of assessment of deferred maintenance improvements.

A. Upon receipt of such application, the Assessor shall:

1. Determine that the property in question is on the tax rolls of the City;

2. Determine that no delinquent taxes on such property are due;

3. Determine that the property is a dwelling consisting of any number of residential units, regardless of the classification of the real property for assessment purposes;

4. Determine that the property is located in an area designated for such tax relief;

5. Determine that the proposed items of deferred maintenance are in compliance with Section 5.26.110; and therefore

6. Certify that the property in question is eligible for assessment postponement upon completion of the proposed deferred maintenance within twelve (12) months of the application.

B. Upon the written notification from the property owner within thirteen (13) months from the date of application certification that said deferred maintenance has been completed, the Assessor:

1. Shall ensure that the deferred maintenance has in fact been completed;

2. Shall not, for a period of five (5) years after the deferred maintenance activity has been begun, add to the assessed value of the dwelling any additional assessed value because of deferred maintenance which has been begun upon such property during the period described in Section 5.26.120; and

3. Shall issue to the owner of the real property a formal declaration that said tax relief is to be made and indicating the assessed valuation of the real property immediately prior to the deferred maintenance and the term of the assessment postponement. (1994 C., § 5.26.150; Ord. No. 61526, § 7, 1989; Ord. No. 59028, § 4(part), 1984; Ord. No. 57973, § 4(part), 1980.)

Chapter 5.28

REVENUE BONDS

Sections:

5.28.010	**Payment.**
5.28.020	**Coupon bonds.**
5.28.030	**Registered bonds—Contents—Forms.**
5.28.040	**Registered bonds—Transfer—New bonds.**
5.28.050	**Registered bonds—Principal and interest payments.**
5.28.060	**Cancellation of bonds.**

5.28.010 Payment.

All bonds, notes, coupons or other public indebtedness of the City shall be paid by the Treasurer if presented at the Treasury, or by the banks selected or designated as the fiscal agents of the City where the bonds, notes, coupons or other public indebtedness may have been made payable. All payments by the Treasurer, on account of such public indebtedness, shall be accounted for by him and allowed to him as prescribed in this section. To meet the payment of public indebtedness by the banks selected or designated as fiscal agents of the City and where bonds, notes, coupons or other public indebtedness may have been made payable, the Treasurer shall, upon receipt of warrants approved by the Mayor, remit to such fiscal agents the amounts specified in warrants. All remittances to, or deposits at the banks selected or designated as fiscal agents of the City, shall be to the credit of the City, subject to the order of the Treasurer, and shall be used by the banks or fiscal agents, respectively, to meet payments of the public debts or liabilities maturing thereat. All such fiscal agents shall, upon receipt of remittance from the Treasurer, acknowledge the same in writing. A duplicate of such acknowledgment shall be sent to the Comptroller and the proper entries shall be made upon the books of the City accordingly. All fiscal agents or depositaries shall return to the Treasurer the bonds, notes, coupons or other evidence of indebtedness of the City, paid by it or them, on the first day of each month, as far as practicable, with a full statement of the City's account. A duplicate of such acknowledgment shall be sent to the Comptroller and the proper entries thereof shall be made upon the books of the City accordingly. All fiscal agents or depositaries shall, at the same time that the bonds, notes, coupons or other public indebtedness are transmitted to the Treasurer, notify the Comptroller of the payment of any bonds, notes, coupons or other public indebtedness, by it or them, giving the number and amount thereof, and in addition thereto the Treasurer and all fiscal agents or depositaries shall stamp or indorse on the face of the bonds, notes, coupons or other public indebtedness, at the time of payment the word "paid" and also cancel the same. (1948 C., Ch. 23, § 49; 1960 C., § 135.010; 1994 C., § 5.28.010.)

Constitution:

Art. 6 § 26 (a) et seq. Limitations on indebtedness of local governments

Charter:

Art. XVII City bonds

RSMo:

RSMo 95.115 et seq. (2016) Financial administration—indebtedness City Counselor Ops.: 8830, 9769

Cases:

City of St. Louis held authorized to issue bonds for poor relief, it being a "municipal purpose." *Jennings v. City of St. Louis,* 58 S.W. 2d 979 (1933).

City held empowered to vote bonds for a municipal auditorium and community center building. *Halbruegger v. City of St. Louis,* 262 S.W. 379 (1924).

City may issue bonds to establish and maintain an airport. *Dysart v. City of St. Louis,* 11 S.W. 2d 1045 (1928).

Issuance of limited obligation bonds funded from enumerated taxes held to be a valid funding arrangement for financing convention center facility. *Wunderlich v. City of St. Louis,* 511 S.W. 2d 753.

Proposed city bond issue held not to require assent of two-thirds of voters at election for that purpose, where bonds were to be issued pursuant to statute. *City of St. Louis v. Sommers,* 266 S.W. 2d 753 (1954).

McQuillin:

43.11 Revenue bonds

5.28.020 Coupon bonds.

Upon application of the holders of any coupon bonds, heretofore or hereafter issued by the City, the right to exchange which is not expressed on the face of such bonds, and upon surrender thereof, at the office of the Comptroller of the City, the Comptroller is authorized to issue to and in the name of such holders registered bonds of like tenor and amount in one or more certificates. The coupon bonds and the coupons attached thereto shall be cancelled by the Comptroller immediately upon being surrendered to him by stamping or writing the words "cancelled" and "exchanged for

registered bond No. ____, date _____,'' in red ink across the face of the bonds and by cancelling the signature of the bonds and coupons with a cancelling punch. (1948 C., Ch. 23, § 50; 1960 C., § 135.020; 1994 C., § 5.28.020.)

5.28.030 Registered bonds—Contents—Forms.

The registered bonds issued under this chapter shall be engraved; provided, however, that the name of the holders, the amounts, numbers and other descriptions of the coupon bonds for which they are exchanged and other matter impracticable to engrave may be written or stamped on the bonds. The registered bonds shall contain the holders, the amounts, numbers and other descriptions of the coupon bonds for which they are exchanged, and shall be signed by the Mayor, Comptroller and Treasurer of the City, attested by the register of the City with the seal of the City affixed thereto and registered by the Comptroller of the City in the name of the holder thereof. The registered bonds shall not be signed by the Mayor, Comptroller and Treasurer until the coupon bonds and registered bonds for which they are exchanged shall have been cancelled as provided in this chapter. When the amount is written in the bond, the bond shall be perforated with the figures and characters expressing the amount for which it is issued. The registered bonds shall have printed on the back thereof the forms and requirements relating to the transfer of the same. (1948 C., Ch. 23, § 51; 1960 C., § 135.030; 1994 C., § 5.28.030.)

5.28.040 Registered bonds—Transfer—New bonds.

Upon application of the holders of registered bonds issued as provided in this chapter, or of their legal representatives, and upon surrender of such bonds at the office of the Comptroller, the Comptroller is authorized to transfer the same on the books of the City to persons designated in the application. The transfer of such bonds must be in written or printed form, endorsed upon the backs of the bonds, and must be acknowledged before a notary public or other officer authorized under the laws of this state to take acknowledgments to deeds for transfers of real estate, or the signatures of the registered holder of the bonds must be attested by an officer of one of the banks or banking houses designated to act as the fiscal agents of the City at New York or London. Applications for transfers must be filed at the Comptroller's Office in the City at least ten days before the date of payment of the semi-annual interest next due on the bonds. The bonds so transferred and surrendered shall be cancelled by the Comptroller, who shall issue new registered bonds therefor, cancellation and issuing of new bonds to be done in the same manner as prescribed in this chapter in the case of coupon bonds exchanged into registered bonds. (1948 C., Ch. 23, § 52; 1960 C., § 135.040; 1994 C., § 5.28.040.)

5.28.050 Registered bonds—Principal and interest payments.

The payment of the principal and interest of the registered bonds as the same become due shall be made by draft, payable to the order of the holder at the place designated in the coupon bonds for the payment of the principal and interest. In cases where the principal and interest of the coupon bonds are payable in two or more places, at the option of the holder, the holder shall express his preference for either one of the places at the time of issuing the certificates, at which place preferred the draft shall be made payable. (1948 C., Ch. 23, § 53; 1960 C., § 135.050; 1994 C., § 5.28.050.)

City Counselor Ops.: 9769

5.28.060 Cancellation of bonds.

The bonds and coupons for which the registered bonds are issued, also the registered bonds in cases of transfers, shall be cancelled by the Mayor, Comptroller and Treasurer and delivered to the Comptroller of the City and his receipt taken therefor. The Comptroller shall preserve such cancelled bonds and coupons and registered bonds in his office in like manner as other cancelled bonds and coupons. The Mayor, Comptroller and Treasurer shall certify, in duplicate, to the cancellation of all bonds and coupons cancelled under Ordinance 17259; one of the certificates of cancellation shall be filed in the Division of Audit and Accounting, the other to be preserved in the Comptroller's main office in a book to be kept for that purpose. (1948 C., Ch. 23, § 54; 1960 C., § 135.060; 1994 C., § 5.28.060.)

Chapter 5.30

WATERWORKS BONDS

Sections:

5.30.010 Sinking fund.
5.30.020 Interest appropriation.

5.30.010 Sinking fund.

There is appropriated annually out of waterworks revenue the sum of one hundred and fifty thousand

dollars to be placed in the sinking fund for the payment of the St. Louis water bonds until there is sufficient sum in the fund for that purpose. (1948 C., Ch. 23, § 55; 1960 C., § 136.010; 1994 C., § 5.30.010.)

5.30.020 Interest appropriation.

In addition to the foregoing sinking fund appropriation there is appropriated from the waterworks revenue annually a sufficient sum of money to pay the interest as it becomes due on the St. Louis water bonds. (1948 C., Ch. 23, § 56; 1960 C., § 136.020; 1994 C., § 5.30.020.)

Charter:

Art. XVII § 5 Payment of "St. Louis Water Bond"

RSMo:

RSMo 95.485 (2016) Debt arising from purchase of waterworks, income applied, how

Chapter 5.32

TAX RATE AND BOND ISSUE ELECTIONS

Sections:

5.32.010 Resubmitting.

5.32.010 Resubmitting.

Any municipal or quasi-municipal corporation, or other public body or agency domiciled within the City is prohibited from resubmitting to the voters of this City any proposition to establish a tax rate or to issue bonds within a period of one year subsequent to any election at which such proposition had been defeated. (1994 C., § 5.32.010; Ord. No. 56010, § 1, 1971.)

Chapter 5.34

HOSPITAL FUND

City Counselor Ops.: 8769

Sections:

5.34.010 Established—Use.
5.34.020 Transfer of funds.

5.34.010 Established—Use.

There is created a fund for the erection of hospital buildings. This fund shall be used in the erection and furnishing of suitable hospital buildings for the care of the sick or insane in the City and shall be expended only as and when directed by ordinance. (1948 C., Ch. 31, § 64; 1960 C., § 441.010; 1994 C., § 5.34.010.)

5.34.020 Transfer of funds.

On or before the fifteenth day of May of each year, the Comptroller shall transfer from municipal revenue to a fund for the erection of hospital buildings an amount equal to one percent (1%) of the municipal revenue of the City for the preceding fiscal year. (1948 C., Ch. 31, § 65; 1960 C., § 441.020; 1994 C., § 5.34.020.)

City Counselor Ops.: 10335

Chapter 5.35

CAPITAL FUND

Sections:

5.35.010 Established.
5.35.020 Committees.
5.35.030 Citizens Advisory Committee for Capital Expenditures.
5.35.040 Capital Committee.

5.35.010 Established.

A. There is hereby created a special fund to be known as the "capital fund," under the care and custody of the Comptroller. Sources of funds for the capital fund shall include, but not be limited to, income generated from the sale of City assets, including real property, but excluding the sale of vehicles, which shall be credited to the capital fund; one-half of any general fund balance from the immediately preceding fiscal year, which shall be appropriated and transferred to the capital fund at the start of each fiscal year, and sources enumerated in Section Seven of the ordinance codified in this section. No funds appropriated in the capital fund may be transferred to any other fund without an amending ordinance.

B. There is hereby created a special fund to be known as the "capital fund—vehicles," under the care and custody of the Comptroller. Sources of funds for the capital fund—vehicles shall include the income generated from the sale of City vehicles and the funds collected as a result of subrogation for damaged vehicles. Said funds can only be used for the purchase of new or used vehicles and can only be expended pursuant to the procedures contained in Ordinance 60419. (1994 C., § 5.35.010; Ord. No. 66259, § 1, 2004; Ord. No. 61250, § 1, 1989; Ord. No. 60419, § 2, 1987.)

5.35.020 Committees.

There are hereby established the following committees set out in this chapter to review and assess capital

needs and to develop and recommend the Capital Improvement Plans and corresponding Capital Budgets. (1994 C., § 5.35.020; Ord. No. 63696, § 1(part), 1996; Ord. No. 63375, § 1(part), 1995; Ord. No. 61250, § 4(part), 1989.)

5.35.030 Citizens Advisory Committee for Capital Expenditures.

There is hereby established a Citizens Capital Improvements Advisory Committee to review and assess capital needs and to advise the Capital Committee on the development and recommendation of the Capital Improvement Plans (CIPs) and corresponding Capital Budgets and to review the City's accomplishments with respect to the Capital Budgets approved in previous years. The Citizens Advisory Committee for Capital Expenditures shall consist of the following: two (2) representatives appointed by each member of the City of St. Louis Board of Aldermen, to serve at the pleasure of the respective Aldermen, and four (4) representatives appointed by each member of the City of St. Louis Board of Estimate and Apportionment to serve at the pleasure of the respective member of said Board. Said Committee shall be established immediately upon enactment of the ordinance codified in this chapter into law. (1994 C., § 5.35.030; Ord. No. 63696, § 1(part), 1996; Ord. No. 63375, § 1(part), 1995; Ord. No. 61250, § 4(A), 1989.)

5.35.040 Capital Committee.

There is hereby established a Capital Committee to review and assess, with the advice of the Citizen Advisory Committee for Capital Expenditures, capital needs and to develop and recommend the CIPs and corresponding Capital Budgets. The Capital Committee shall consist of the following: the Budget Director, who shall serve as Chairman, the Community Development Agency Director, the President of the Board of Public Service, the President of the Board of Aldermen (or his/her designee), one other Alderman appointed by the President of the Board of Aldermen, the Chairman of the Ways and Means Committee of the Board of Aldermen of the City of St. Louis (or his/her designee), the Comptroller (or his/her designee), and one other person from the Comptroller's Office who is employed at a management pay grade and appointed by the Comptroller, and the Mayor (or his/her designee). (1994 C., § 5.35.040; Ord. No. 63696, § 1(part), 1996; Ord. No. 63375, § 1(part), 1995; Ord. No. 61250, § 4(B), 1989.)

Chapter 5.36

CONVENTION, EXHIBITION AND COMMUNITY CENTER FUND

Cases:

Issuance of limited obligation bonds funded from enumerated taxes held to be a valid funding arrangement for financing convention center facility. *Wunderlich v. City of St. Louis,* 511 S.W. 2d 753 (1974).

Sections:

5.36.005 Definitions.
5.36.010 Established.
5.36.020 Budget appropriation required.
5.36.030 Contract payment limit—Board of Aldermen concurrence.

5.36.005 Definitions.

As used in this chapter the following terms have the following meanings:

A. "Convention and tourism fund" means those funds derived from taxes and license fees under Ordinance 56263 which, under Section 5.36.010 of the Revised Code of the City of St. Louis are used for the purposes set forth in Chapter 3.64 of the Revised Code of the City of St. Louis.

B. "Convention and Tourism Bureau" means the Convention and Tourism Bureau as established and with duties prescribed by Chapter 3.64 of the Revised Code of the City of St. Louis, and sometimes referred to as the Convention and Tourism Board. (1994 C., § 5.36.005; Ord. No. 61969, § 1, 1990.)

5.36.010 Established.

There is established the City convention, exhibition and community center building revenue fund (hereafter called the "revenue fund"), the City convention, exhibition and community center building bond reserve fund (hereafter called the "bond reserve fund") and the City convention, exhibition and community center building bond service fund (hereafter called the "bond service fund"). The taxes and license fees levied and collected and appropriated pursuant to Ordinance 56263 shall be deposited to the credit of the revenue fund. The Comptroller shall disburse from the revenue fund to the bond service fund and the bond reserve fund the amounts required to be paid therein, in accordance with the ordinance authorizing the issuance of convention, exhibition and community center revenue bonds. The amount remaining in the revenue fund after the disbursements required to be made in this section

shall be used for the purpose of carrying out the duties and obligations of the Convention and Tourism Bureau under Chapter 3.62 of this Code. On and after July 1, 1990, no funds collected pursuant to the tax imposed pursuant to Ordinance 56263 shall be expended unless such funds shall have been appropriated and with respect to funds appropriated to the Convention and Tourism Bureau their expenditure contracted for pursuant to Ordinance 61969 (Board Bill 675) unless such expenditure is pursuant to Section Six of such Ordinance 61969 (Board Bill 675). (1994 C., § 5.36.010; Ord. No. 61969, § 2, 1990; Ord. No. 56263, § 1, 1972; Ord. No. 55854, § 1, 1971; Ord. No. 54944, § 3, 1968.)

City Counselor Ops.: 9865, 10063, 10231

5.36.020 Budget appropriation required.

In accordance with Article XVI of the Charter of the City of St. Louis, the St. Louis Board of Aldermen shall, in each ordinance approving the City budget (the "Budget Ordinance") for Fiscal Year 1990—1991 and for each fiscal year thereafter, appropriate funds to be collected each year pursuant to Ordinance 56263 for expenditure only:

A. By the Convention and Tourism Bureau for the purposes listed in Section 3.64.020 of the Revised Code of the City of St. Louis, 1980 Anno.; and/or

B. For partial funding of the operation or other City financial obligations with respect to the Alphonso J. Cervantes Convention Center; and/or

C. For partial funding of the costs of operation of Kiel Auditorium. (1994 C., § 5.36.020; Ord. No. 61969, § 3, 1990.)

5.36.030 Contract payment limit—Board of Aldermen concurrence.

The ordinance approving the City budget (the "Budget Ordinance") for Fiscal Year 1990—1991 and such ordinance for each fiscal year thereafter shall state that any contract approved by the Convention and Tourism Bureau providing for any payment to any one corporation or organization in excess of or aggregating in excess of one hundred thousand dollars ($100,000.00) during any one fiscal year of the City shall be subject to the concurrence of the St. Louis Board of Aldermen, which concurrence shall be evidenced by resolution of such Board adopted after request of the Convention and Tourism Bureau or by specific inclusion in the Budget Ordinance. (1994 C., § 5.36.030; Ord. No. 61969, § 4, 1990.)

Chapter 5.38

IMPROVED WHARF FUND

Sections:

5.38.010 Established.
5.38.020 Appropriation use.

5.38.010 Established.

The Comptroller is hereby authorized and directed to establish the improved wharf fund wherein income from parking concession(s) on the riverfront shall be placed. (1994 C., § 5.38.010; Ord. No. 62518, § 2, 1992; Ord. No. 60104, § 1, 1986.)

5.38.020 Appropriation use.

Upon recommendation by the Port Authority Commission, and with written notice to the Clerk of the Board of Aldermen, The Board of Estimate and Apportionment may, from time to time, recommend and approve an appropriation from the improved wharf fund for the purpose of dispensing moneys to defray the cost of maintenance performed for the Improved Wharf by the Department of Parks, Recreation and Forestry, the Department of Streets and the Port Authority and to pay for construction, design, marketing, studies and other costs relating to the Improved Wharf. (1994 C., § 5.38.020; Ord. No. 62518, § 3, 1992; Ord. No. 60104, § 2, 1986.)

Chapter 5.40

HOSPITAL REVENUE FUND

Sections:

5.40.010 Established.
5.40.020 Deposits.
5.40.030 Expenditures.
5.40.040 Excess funds.

5.40.010 Established.

There is established the "hospital revenue fund" in the office of the City Comptroller. (1994 C., § 5.40.010; Ord. No. 56771, § 1, 1974.)

5.40.020 Deposits.

After all funds received by the Division of Hospitals, including, but not limited to, receipts from Blue Cross, Blue Shield, Medicare, etc., shall be deposited exclusively in the hospital revenue fund. (1994 C., § 5.40.020; Ord. No. 56771, § 2, 1974.)

5.40.030 Expenditures.

Funds so deposited in the hospital revenue fund may be expended, upon duly executed and approved vouchers, for the purposes set forth and up to the amounts authorized in detail in the annual budget for the Hospital Division but expenditures from the hospital revenue fund for Homer G. Phillips Hospital and Max C. Starkloff Hospital shall always be apportioned in equal amounts to each hospital. (1994 C., § 5.40.030; Ord. No. 56771, § 3, 1974.)

5.40.040 Excess funds.

In the event the Division of Hospitals receives, and there is deposited in the hospital revenue fund, funds in an amount in excess of that appropriated in the annual budget, the excess funds may be expended for any of the purposes set forth in the annual budget for the Division of Hospitals, on the approval of the Board of Estimate and Apportionment and of the Board of Aldermen provided that the apportionments set forth in Section 5.40.030 are maintained at all times. (1994 C., § 5.40.040; Ord. No. 56771, § 4, 1974.)

Chapter 5.42

MAYOR'S CONTINGENT FUND

Sections:

5.42.010 Appropriation.
5.42.020 Report—Filing required.
5.42.030 Report—Available to public.

5.42.010 Appropriation.

There shall be appropriated and set aside annually out of general municipal revenue the sum of thirty thousand dollars ($30,000.00) to be used by the Mayor as a contingent fund. The fund shall be used by the Major at his or her discretion. The Mayor shall make a report to the City Register for the use of the fund in the aggregate amounts for each of the following categories:

A. Civic and charitable contributions;

B. Memberships;

C. Mayor's Office miscellaneous expenses;

D. Flowers and gifts;

E. Entertainment, lobbying and other business related activities;

F. Personal. (1948 C., Ch. 2, § 11; 1960 C., § 10.060; 1994 C., § 5.42.010; Ord. No. 61089, § 1, 1988; Ord. No. 55652, § 2, 1970; Ord. No. 45622, § 1, 1951.)

Charter:

Art. XXV § 6 Mayor's contingent fund

5.42.020 Report—Filing required.

The Mayor's obligation to file said report as called for in Section 5.42.010 shall be construed as mandatory, and shall be considered and construed to be a condition precedent to drawing any funds against the following fiscal year's contingency fund, whether said following fiscal year's contingency fund has been approved by the passage of an approved budget for the City, of which said contingency fund shall be a part, or whether the contingency fund is merely proposed and the City is operating under the authority of a continuing resolution. (1994 C., § 5.42.020; Ord. No. 61089, § 2, 1988.)

5.42.030 Report—Available to public.

Such report shall be kept by the City Register and shall be available to the public upon request. The City Register shall certify to the Comptroller that the Mayor has complied with the provisions set forth in this chapter. The report shall be filed with the City Register on April 16 of each year or the next business day thereafter. (1994 C., § 5.42.030; Ord. No. 61089, § 3, 1988.)

Chapter 5.44

PAY PERIOD RESERVE FUND

Sections:

5.44.010 Established.
5.44.020 Deposits—Expenditures.
5.44.030 Appropriation.

5.44.010 Established.

There is established a special reserve fund which shall be entitled "twenty-seventh pay period reserve fund" and into which shall annually be appropriated an amount equal to one-seventh of the estimated bi-weekly payroll of the City to provide adequate funds for the twenty-seventh bi-weekly payroll when it next occurs in the 1981—1982 fiscal year. (1994 C., § 5.44.010; Ord. No. 57062, § 1, 1975.)

5.44.020 Deposits—Expenditures.

The funds annually appropriated into the twenty-seventh pay period reserve fund shall be deposited in interest-bearing accounts and shall be only expended for the twenty-seventh bi-weekly payroll when it next occurs in the 1981—1982 fund year. (1994 C., § 5.44.020; Ord. No. 57062, § 2, 1975.)

5.44.030 Appropriation.

There is appropriated and set apart from the general revenues of the City seven hundred thousand dol-

lars to the twenty-seventh pay period reserve fund, which amount is equal to one-seventh of the estimated cost of a bi-weekly payroll for the 1975—1976 fiscal year. (1994 C., § 5.44.030; Ord. No. 57062, § 3, 1975.)

Chapter 5.46

MUNICIPAL BRIDGE FUND

Sections:

5.46.010 Deposits—Expenditures.

5.46.010 Deposits—Expenditures.

All of the money collected as payments for the use of the railroad deck or any of its approaches, or from any other source relating to the railroad's use thereof, shall be placed in a separate fund, to be known as the "municipal bridge fund" which shall be used exclusively for the expenditures provided in this section on account of the maintenance and operation of the railroad deck and railroad approaches and the expenses of conducting the work of the Commission and of the Comptroller. Any excess in the fund over the amounts needed in the opinion of the Commission for the purposes stated in this section, may be used: first, for the renewal and retirement, when expedient, of the physical property; second, for the payment to the City of interest as rental at the rate of not to exceed five percent per year on the "actual total cost"; and third, to reimburse the City for and on account of all amounts theretofore expended by the City as included within such "actual total cost." (1948 C., Ch. 19, § 27; 1960 C., § 593.130; 1994 C., § 5.46.010.)

City Counselor Ops.: 8318, 8437, 9845

Chapter 5.48

TRANSPORTATION TRUST FUND

Sections:

5.48.010 Established.
5.48.020 Sales tax deposit.
5.48.030 Appropriation—Authorized.
5.48.040 Appropriation—Purpose.
5.48.050 Appropriation—Excesses.
5.48.060 Appropriation—City obligation.

5.48.010 Established.

There is established a special fund to be known as the "transportation trust fund." (1994 C., § 5.48.010; Ord. No. 56584, § 1, 1973.)

RSMo:

RSMo 94.625, 94.630 (2016) Transportation sales tax trust fund

RSMo 94.645 (2016) Transportation trust fund created, limitation on use of funds

5.48.020 Sales tax deposit.

All revenues generated by the additional one-half cent sales tax enacted by Ordinance No. 56554, approved June 29, 1973 as authorized by House Bill No. 65 of the 77th General Assembly of the state shall be deposited to the credit of the transportation trust fund. (1994 C., § 5.48.020; Ord. No. 56584, § 2, 1973.)

Editor's Note:

The session law referenced in the above section is RSMo 94.600 et seq. (2016).

For Ordinance 56554, see §§ 5.24.060—5.24.080.

5.48.030 Appropriation—Authorized.

"There is appropriated from the unappropriated balance of the transportation trust fund the sum of two hundred thirty-four thousand, five hundred dollars to the Bi-State Development Agency for transportation purposes as defined in House Bill No. 65 of the 77th General Assembly of the state. (1994 C., § 5.48.030; Ord. No. 56584, § 3, 1973.)

Editor's Note:

The session law referenced in the above section is RSMo 94.600 et seq. (2016).

5.48.040 Appropriation—Purpose.

The funds appropriated by this chapter to the Bi-State Development Agency are solely for the purpose of preventing the announced termination of public bus service in the City and shall not be construed to be the City's percentage of any formula which may be established to determine the City's share to be paid to the Bi-State Development Agency in the future. (1994 C., § 5.48.040; Ord. No. 56584, § 4, 1973.)

5.48.050 Appropriation—Excesses.

If the funds appropriated by this chapter exceed the City's percentage of any formula arrived at in determining the City's share to be paid to Bi-State Development Agency, the amount in excess of the share shall be credited to the future payments of the City to Bi-

State Development Agency. (1994 C., § 5.48.050; Ord. No. 56584, § 5, 1973.)

5.48.060 Appropriation—City obligation.

The funds appropriated by this chapter to Bi-State Development Agency shall not be construed as an obligation for further payments by the City to the Bi-State Development Agency. (1994 C., § 5.48.060; Ord. No. 56584, § 6, 1973.)

Chapter 5.50

STREET IMPROVEMENT FUND

Sections:

5.50.010 Procedures and standards.
5.50.020 List of unimproved streets.
5.50.030 Selection of unimproved streets.
5.50.040 Cost estimates—Appropriation.
5.50.050 Deposits.

5.50.010 Procedures and standards.

The procedures and standards set out in this chapter are to be followed and applied as a prerequisite for expenditures from the street improvement fund. (1994 C., § 5.50.010; Ord. No. 58894, § 1(part), 1983; Ord. No. 56000, § 1(part), 1971.)

5.50.020 List of unimproved streets.

The Director of Streets shall at the beginning of each calendar year, prepare a list of unimproved streets, improved streets, geometric design improvement, alley, curb and sidewalk improvement during the resurfacing of improved streets proposed for improvement during that calendar year. (1994 C., § 5.50.020; Ord. No. 58894, § 1(A), 1983; Ord. No. 56000, § 1(A), 1971.)

5.50.030 Selection of unimproved streets.

The projects designated for improvement shall be selected on the following basis: Proposed improvements shall be distributed as equally as possible geographically throughout the City so that the sum of the improvements proposed in any one geographic area of the City shall not be substantially greater proportionately than those in any other area, considering the total street mileage in any such area. (1994 C., § 5.50.030; Ord. No. 58894, § 1(B), 1983; Ord. No. 56000, § 1(B), 1971.)

5.50.040 Cost estimates—Appropriation.

The Director of Streets shall prepare an ordinance with a proposed list of street improvements, including an estimate of the cost endorsed thereon, and providing for an appropriation of the monies from the street improvement fund. (1994 C., § 5.50.040; Ord. No. 58894, § 2, 1983; Ord. No. 56000, § 2, 1971.)

5.50.050 Deposits.

The Comptroller is hereby directed to deposit all money received from the additional sales taxes authorized by the adoption of proposition C at the November 2, 1982 elections into the street improvement fund and used for the improvement of streets as authorized by ordinance recommended by the Board of Public Service and the Board of Estimate and Apportionment. (1994 C., § 5.50.050; Ord. No. 58894, § 4, 1983.)

Chapter 5.52

URBAN REDEVELOPMENT AND NEIGHBORHOOD REHABILITATION FUND

For neighborhood rehabilitation, see Chapter 3.86.

City Counselor Ops.: 8637, 8651, 8895

Sections:

5.52.010 Established.
5.52.020 Deposits.
5.52.030 Payments.

5.52.010 Established.

The Comptroller is authorized and directed to establish a special fund to be known as "the urban redevelopment and neighborhood rehabilitation fund." (1960 C., § 91.010; 1994 C., § 5.52.010; Ord. No. 49111, § 1, 1958.)

5.52.020 Deposits.

The Comptroller is authorized and directed to place to the credit of the fund provided for in Section 5.52.010 all money received by the City from the sale of any and all real property owned by it and all money received by the City for the relinquishment of the City's easement in public highways and portions thereof, except as otherwise provided by ordinance. (1960 C., § 91.020; 1994 C., § 5.52.020; Ord. No. 49111, § 2, 1958.)

5.52.030 Payments.

No payments shall be made out of the urban redevelopment and neighborhood rehabilitation fund except pursuant to ordinances recommended to the Board of Aldermen by the Board of Estimate and Apportionment. (1960 C., § 91.030; 1994 C., § 5.52.030; Ord. No. 49111, § 3, 1958.)

Chapter 5.53

VICTIMS OF DOMESTIC VIOLENCE FUND

Sections:

5.53.010 **Surcharge imposed.**

5.53.020 **Special fund created—Payment and disbursement—Administration.**

5.53.030 **Fees collected—Monthly report required.**

5.53.010 Surcharge imposed.

There is hereby imposed, pursuant to the authority of RSMo 448.445 a surcharge of two dollars ($2.00) upon any civil case filed in the Circuit Court. The surcharge shall not be charged when costs are waived or are to be paid by the state or City. (1994 C., § 5.53.010; Ord. No. 65106, § 1, 2000.)

5.53.020 Special fund created—Payment and disbursement—Administration.

The surcharge imposed shall be paid by the party who filed the petition and shall be collected and disbursed by the Clerk of the Court in the manner provided by RSMo 488.010 to 488.020. Said amounts shall be payable to the Treasury of the City. The Treasurer shall deposit such fees upon receipt in a special fund and said funds, including interest, are to be expended only to provide financial assistance to shelter for victims of domestic violence as provided in RSMo 455.200—455.230, as amended. The Department of Human Services is hereby designated as the authority to request proposals for funding under this chapter, and all such proposals shall be submitted in accordance with state law and City ordinances. The Department of Human Services is hereby designated as the appropriate authority to administer the allocation and distribution of the funds to shelters for victims of domestic violence. (1994 C., § 5.53.020; Ord. No. 65106, § 2, 2000.)

5.53.030 Fees collected—Monthly report required.

Monthly, the Clerk of the Court shall file a verified report with the Clerk of the Board of Aldermen, the Register, the Comptroller and the Director of Human Services of the fees collected pursuant to this chapter. (1994 C., § 5.53.030; Ord. No. 65106, § 3, 2000.)

Chapter 5.54

WARRANTS

Sections:

5.54.010 **Accounts, claims and receipts.**

5.54.020 **Unclaimed.**

5.54.030 **Unpaid payrolls.**

5.54.040 **Warrants to debtors to City.**

5.54.050 **Unpaid sums due City from City officers.**

5.54.060 **Time limit on certain claims.**

5.54.070 **Warrant time limits.**

5.54.010 Accounts, claims and receipts.

Every warrant drawn by the Comptroller shall specify the fund or appropriation out of which it is to be paid. Before its delivery to the party entitled thereto, the Comptroller shall require of such party a proper and legal receipt for the amount thereof, which shall be attached to the claim and demand. These accounts, claims and demands, and the receipts and accompanying papers, shall be filed by the Comptroller in his office. (1948 C., Ch. 23, § 33; 1960 C., § 123.010; 1994 C., § 5.54.010.)

McQuillin:

42.01 et seq. Warrants

5.54.020 Unclaimed.

Whenever any warrant drawn on the Treasurer shall have remained in the possession of the Comptroller for five years, unclaimed, or not called for by the person in whose favor it shall have been drawn, or his legal representatives, the Comptroller shall cancel the same, which fact shall be made a matter of record in the office of the Comptroller. (1948 C., Ch. 23, § 34; 1960 C., § 123.020; 1994 C., § 5.54.020.)

5.54.030 Unpaid payrolls.

All sums of money remaining unpaid on payrolls returned by the Treasurer to the Comptroller and uncalled for by the proper persons or their legal representatives within one year shall be transferred by the Comptroller to the respective funds from which they were drawn. (1948 C., Ch. 23, § 35; 1960 C., § 123.030; 1994 C., § 5.54.030.)

City Counselor Ops.: 8590

5.54.040 Warrants to debtors to City.

The Comptroller shall not draw a warrant on the Treasurer in favor of any person who is known to the

Comptroller to be indebted to the City or the assignee of such person except for the balance which may appear to be due such person, over and above the debt due the City. Nor shall he draw a warrant in favor of any officer who is known to the Comptroller to be in arrears or default to the City. If any report in writing of any such indebtedness shall have come to the Comptroller he shall be considered as having knowledge of the facts therein stated. (1948 C., Ch. 23, § 36; 1960 C., § 123.040; 1994 C., § 5.54.040.)

City Counselor Ops.: 8562, 8565, 8732

5.54.050 Unpaid sums due City from City officers.

Whenever, upon the adjustment of any account, a sum of money shall be found by the Comptroller to be due to the City, from any City officer, and the same shall not be paid into the City Treasury within ten days after the adjustment of the account and the Treasurer's receipt therefor delivered to the Comptroller, he shall certify the amount so due to the Mayor, who shall order suit to be commenced against the delinquent, or take such other measures as in his judgment will most effectually secure the City from loss. (1948 C., Ch. 23, § 37; 1960 C., § 123.050; 1994 C., § 5.54.050.)

5.54.060 Time limit on certain claims.

No claim against the City which is not founded on a bond or other instrument of writing, executed by the City, shall be audited and paid which has not been presented within one year from the time such claim became due. This shall also include all jury and witness fees and costs of inquests for which certificates have been issued. (1948 C., Ch. 23, § 38; 1960 C., § 123.060; 1994 C., § 5.54.060.)

City Counselor Ops.: 9564

5.54.070 Warrant time limits.

Whenever any warrant, being delivered, shall not be presented to the City Treasurer for payment within five years after the date thereof, the warrant shall be barred and not paid by the Treasurer, nor shall it be received in payment of taxes or other dues. (1948 C., Ch. 23, § 39; 1960 C., § 123.070; 1994 C., § 5.54.070.)

Chapter 5.56

SUPPLY DIVISION

For purchasing supplies, see Chapter 5.58.

Sections:

5.56.010 Office of Supply Commissioner created.
5.56.020 Commissioner—Qualifications.
5.56.030 Commissioner—Bond.
5.56.040 Deputy Commissioner—Employees.
5.56.050 Perpetual supply inventory.
5.56.060 Department supply reports.
5.56.070 Return lists of property—Contents.
5.56.080 Return lists of property—Recording.
5.56.090 Monthly requisitions.
5.56.100 Disposition of unfit property.

5.56.010 Office of Supply Commissioner created.

There is created and established the office of Supply Commissioner, which shall be conducted by the officer known as the Supply Commissioner, to be appointed as provided in Section 1 of article VIII of the Charter. (1948 C., Ch. 23, § 103; 1960 C., § 85.010; 1994 C., § 5.56.010.)

Charter:

Art. XV § 27 Supply commissioner

Art. XV § 28 Duty as member of board of standardization

Art. VIII § 1 Appointment of supply commissioner by mayor

5.56.020 Commissioner—Qualifications.

In addition to the qualifications prescribed in Sections 2 and 3 of article VIII of the Charter, the Supply Commissioner shall have been a resident of this City for at least three years next preceding his appointment. (1948 C., Ch. 23, § 104; 1960 C., § 85.020; 1994 C., § 5.56.020.)

5.56.030 Commissioner—Bond.

The Supply Commissioner shall give a bond of twenty thousand dollars with not less than three good sureties, who shall be holders of unencumbered real estate within the City, or a responsible bonding company as surety, the bond to be approved by the Comptroller. The condition of the bond shall be:

A. That the Commissioner shall honestly and faithfully execute and perform the duties of his office as prescribed by law and ordinances;

B. That he will not, directly or indirectly, be in any manner interested in the sale of any article to the City; and

C. That he will not, directly or indirectly, receive any bribe, gift or consideration of any kind from any person who has been, is now, or is likely to be engaged through the department in furnishing any supplies or selling any article to the City or from any such persons. (1948 C., Ch. 23, § 105; 1960 C., § 85.030; 1994 C., § 5.56.030.)

5.56.040 Deputy Commissioner—Employees.

The Supply Commissioner shall appoint a deputy. In the absence of the Supply Commissioner, the deputy shall perform his duties. The Supply Commissioner may also appoint clerks, bookkeepers and other assistants as necessary to perform the duties of his office. All appointments authorized by this section shall be made in accordance with the Charter and the ordinances of the City. (1948 C., Ch. 23, § 106; 1960 C., § 85.040; 1994 C., § 5.56.040.)

Charter:

Art. XV § 26 Composition of supply division

5.56.050 Perpetual supply inventory.

It shall be the duty of the Supply Commissioner to maintain a perpetual inventory of supplies on hand in the various departments, boards and offices of the City. (1948 C., Ch. 23, § 107; 1960 C., § 85.050; 1994 C., § 5.56.050.)

5.56.060 Department supply reports.

It shall be the duty of the head of every department, board and office under the City government to cause to be made to the Supply Commissioner on forms to be provided by him, a weekly report of all supplies received and of all supplies issued or disposed of in each division, section, office, institution or other station under the jurisdiction of the officer whose duty it is to cause such report to be made. (1948 C., Ch. 23, § 108; 1960 C., § 85.060; 1994 C., § 5.56.060.)

City Counselor Ops.: 7785, 8686

5.56.070 Return lists of property—Contents.

On the first Mondays of April and October of each year the several elected and appointive officers, clerks, employees and all persons holding office in the corporation of the City, shall make a full and accurate return list of all property of whatever kind or nature in their office, or that may come into their possession, during their term of office, or that comes to them in any way after they have become qualified, and taken charge of their office. The return list shall embrace, in tabular form, the name, number, kind of article, for what purpose used, condition and full description and general remarks attached to each entry in order to render full satisfaction as regards the same. The return list shall embrace, in tabular form, the name, number, kind of article, for what purpose used, condition and full description and general remarks attached to each entry in order to render full satisfaction as regards the same. The return list shall embrace a statement of all condemned, surplus or refuse property that may have been had or reported during the preceding year in the department or office, and the disposition made thereof. (1948 C., Ch. 23, § 109; 1960 C., § 85.070; 1994 C., § 5.56.070.)

5.56.080 Return lists of property—Recording.

The return list when fully completed shall be returned to the office of the Comptroller, whose duty it shall be to provide a book of proper size, regularly printed, ruled, indexed, paged, numbered, endorsed as "public property, record number—and year," in which shall be entered and written in a legible hand the contents of each and every list so returned, giving the name of the officer and his official position, the date and year the return was made, and such other facts connected with the same as necessary and of importance. (1948 C., Ch. 23, § 110; 1960 C., § 85.080; 1994 C., § 5.56.080.)

5.56.090 Monthly requisitions.

All officers requiring supplies shall, on or before the first of each month, make an estimate of what articles are required for use in their department for the coming month, and shall make but one requisition per month for any one article needed. (1948 C., Ch. 23, § 111; 1960 C., § 85.090; 1994 C., § 5.56.090.)

5.56.100 Disposition of unfit property.

Every officer before making requisition for any article needed, shall carefully examine all the articles he may have under his charge, and if the articles such as tools, furniture, etc., are unfit for service, they shall be turned over to the Comptroller on receipt of the new articles. (1948 C., Ch. 23, § 112; 1960 C., § 85.100; 1994 C., § 5.56.100.)

City Counselor Ops.: 7768

Chapter 5.58

SUPPLY PURCHASE PROCEDURES

Cases:

City held not estopped from alleging that contract for purchase of coal screenings was not properly executed under city charter and statute. *West Virginia Coal Co. v. City of St. Louis,* 25 S.W. 2d 466 (1930). (Chapter)

Sections:

5.58.010	**Supply division to purchase all supplies—Exceptions.**
5.58.015	**Cooperative or joint purchasing programs—Supply Commissioner authorization.**
5.58.020	**Advertisement—Deposits by bidders.**
5.58.030	**Proposal blanks.**
5.58.040	**Opening of bids.**
5.58.050	**Contract approval—Purchases without advertising—Unsuccessful bidder's check return.**
5.58.060	**Successful bidder certified check.**
5.58.070	**Warrant.**
5.58.080	**Failure to fulfill contract.**
5.58.090	**Advertisements for food, drugs and fuel.**
5.58.100	**Perishable articles.**
5.58.110	**Requisition for supplies not contracted.**
5.58.120	**Purchase of fire engines and other apparatus.**
5.58.130	**Purchase of vehicles.**
5.58.140	**Examination of articles—Memorandum.**
5.58.150	**Approval of purchases.**
5.58.160	**Bonds for performance of contracts—Delivery—Packaging.**
5.58.170	**Declining bids.**

5.58.010 Supply division to purchase all supplies—Exceptions.

A. The supply division shall purchase all supplies for all departments, boards or offices, exclusive of material for public work or improvements, according to standards and specifications, if any, adopted or prepared by the Board of Standardization and by advertising for proposals therefor.

B. Each solicitation to bid and the method of describing the items to be bid upon of any goods or commodities sought to be purchased by the office of Supply Commissioner, and any contract entered into by and on behalf of the City and executed by the Mayor and/or the Comptroller of the City wherein the construction, alteration, repair or maintenance of any public works is the subject of the contract so executed, shall contain a provision that the goods or commodities furnished or used in the furtherance of said project by any contractor or subcontractor, manufacturer or supplier as the case may be, shall be manufactured, assembled or produced in the United States, and said requirement as defined above shall be stated in said bid.

C. The provision of this Section 5.58.010 shall not apply in the following instances:

1. Where the item purchased as the contract entered into for repairs or renovation is less than one thousand dollars ($1,000.00);

2. Where a particular good or product is not manufactured, assembled or produced in the United States;

3. Where the acquisition of United States manufactured or produced goods would increase the cost by more than ten percent (10%).

D. The certificate required by this section shall specify the nature of the contract, the product being purchased or leased, the names and addresses of the United States manufacturers and producers contacted by the Commissioner or the project architect or engineer, and an indication that such manufacturers or producers could not supply sufficient quantities or that the price of the products would increase the cost of the contract by more than ten percent (10%).

E. No public agency may authorize, provide for, or make any payment to any vendor or contractor upon any contract in violation of Subsection B of this section. Prior to the awarding of the bid and before any public agency authorizes, provides, or makes payment to any vendor or contractor upon any contract to which Subsection B or G of this section applies, the vendor or contractor shall provide proof of compliance with Subsection B of this section, and, if applicable, Subsection G of this section. Any vendor or contractor who knowingly misrepresents any material fact to the public agency concerning the origin of any manufactured goods or commodities shall be guilty of a Class A misdemeanor.

F. Subsections B through G of this section shall apply only to contracts and subcontracts entered into after the effective date of this act [July 20, 1990] and shall not limit the use or supply of manufactured goods or commodities purchased or leased prior to the effective date of this act [July 20, 1990].

G. Nothing in Subsections B through G of this section is intended to contravene any existing treaty, law, agreement, or regulation of the United States. All contracts under Subsections B through G shall be entered into in accordance with existing treaty, law, agree-

ment, or regulation of the United States, including all treaties entered into between foreign countries and the United States regarding export-import restrictions and international trade and shall not be in violation of Subsections B through G of this section. (1948 C., Ch. 23, § 113; 1960 C., § 86.010; 1994 C., § 5.58.010; Ord. No. 62037, §§ 1—6, 1990.)

Charter:

Art. XV § 29 How supplies purchased

City Counselor Ops.: 8010, 8925

5.58.015 Cooperative or joint purchasing programs—Supply Commissioner authorization.

A. Subject to the applicable provisions of the Charter of the City of St. Louis, the Supply Commissioner, on behalf of the City of St. Louis, is hereby authorized to participate in cooperative or joint purchasing programs of other governmental entities, including, but not limited to, the State of Missouri Cooperative Procurement Program and the federal General Services Administration supply schedules authorized by the Electronic Government Act of 2002, for the purchase of supplies under and in accordance with purchase agreements established by other governmental entities, and to enter into cooperative purchase memberships and cooperative purchase agreements with other governmental entities as may be required for such purchasing.

B. Notwithstanding the provisions of any other ordinance, the Supply Commissioner, with the approval of the Board of Standardization and subject to the provisions of Subsection C of this section, is authorized to participate in the joint or cooperative purchasing programs of other governmental entities, including, but not limited to, the State of Missouri Cooperative Procurement Program and the federal General Services Administration supply schedules authorized by the Electronic Government Act of 2002, as follows:

1. To utilize purchase agreements established by other governmental entities under their joint or cooperative purchase programs as separate bids for the purchases of specific items in bidding processes conducted by the Supply Commissioner; and

2. To purchase City supplies directly from purchase agreements established by other governmental entities under their joint or cooperative purchasing programs for which advertising and bidding has been conducted through such governmental entities.

Bid deposits and separate purchase contracts shall not be required for supply purchases by the Supply Commissioner under joint or cooperative programs of other governmental entities as authorized herein.

C. The Supply Commissioner is authorized to utilize purchase agreements established by other governmental entities under cooperative or joint purchasing programs as authorized by this section only if the following requirements are met:

1. The purchase agreement was established in accordance with the bidding and advertising requirements of the Charter of the City of St. Louis;

2. The purchase agreement was established in accordance with the laws and regulations applicable to the establishing governmental entity; and

3. The purchase agreement provides for the lowest and best price.

D. Nothing contained herein shall require the Supply Commissioner or the Board of Standardization to participate in any joint or cooperative purchasing program of another governmental entity or to utilize any cooperative agreement to purchase supplies. The Supply Commissioner is authorized to reject any and all bids received through the participation in any cooperative or joint purchase program. (1994 C., § 5.58.015; Ord. No. 65884, §§ 1—4, 2003.)

5.58.020 Advertisement—Deposits by bidders.

Advertisements for proposals shall state fully the quantity and quality of all articles needed, the time and place fixed for opening proposals and the Supply Commissioner may, by the advertisement, require every bidder to deposit with the Supply Commissioner a check certified to by some bank or trust company in the City, payable to the order of the Treasurer of the City, for an amount of money the Supply Commissioner deems sufficient to secure the proper execution of the contract or contract and bond for furnishing supplies for which proposals are solicited, or to secure the furnishing of supplies not under formal contract and in a manner satisfactory to the Supply Commissioner. (1948 C., Ch. 23, § 114; 1960 C., § 86.020; 1994 C., § 5.58.020.)

City Counselor Ops.: 8925

5.58.030 Proposal blanks.

The Supply Commissioner shall furnish to each bidder a printed blank for his proposal, whereon the bidder shall state the quantity, quality and price of the article to be furnished. In specifying the quantity and quality thereof he shall recite the requirements of the

advertisement, and any bidder may make his proposal for any one article named in the advertisement. Bids shall be sealed. (1948 C., Ch. 23, § 115; 1960 C., § 86.030; 1994 C., § 5.58.030.)

5.58.040 Opening of bids.

A. Proposals shall be opened at the time and place fixed by the advertisement, in the presence of such bidders as desire to be present, and shall be open to the inspection of bidders.

B. The bids shall not be materially modified or amended as to price, specification or otherwise, nor substitutions placed thereon, after opening except when the lowest bid is from a non-local bidder. When the lowest bid is from a non-local bidder, any local bidder within two percent of the lowest bid may match the lowest bid. If a local bidder matches the lowest bid, then the Supply Commissioner may select the bid from the local bidder. If more than one local bidder is within two percent of the lowest bid, then only the lowest local bidder may match the bid. In all other circumstances, modification, supplementation or amendment shall cause rejection of the bid. For purposes of this chapter, the term "local bidder" means a bidder whose principal place of business is within the City of St. Louis, has had a valid business license for at least one year, and is current in payment of local taxes. Principal place of business shall be defined as the business's physical office, plant, or site where a majority (51%) of the full-time employees, chief officer, and managers of the business regularly work and conduct business, or where the plant or office and equipment required for the furnishing of the goods or performance of the services provided to the City, as required by the contract, are physically located in the City of St. Louis for at least one taxable year immediately prior to the date of the bid.

C. Bids may be for one or more or all the articles advertised for, but there shall be a specific bid on each article. The award may be made to the lowest bidder for any article, or to the lowest bidder for the entire requisition or any part thereof, but the Board of Standardization may reject any or all bids or any part of any bid. (1948 C., Ch. 23, § 116; 1960 C., § 86.040; 1994 C., § 5.58.040; Ord. No. 69431, § 2, 4-29-2013; Ord. No. 56716, § 1, 1974.)

City Counselor Ops.: 9234

5.58.050 Contract approval—Purchases without advertising—Unsuccessful bidder's check return.

Whenever a formally executed contract for the furnishing of supplies shall be required by law, the contract shall be approved by the Board of Standardization before it shall become binding upon the City. The Supply Commissioner may, subject to the provisions of the Charter, contract for supplies in any amounts or for any periods as may be approved by the Board of Standardization. In cases of emergency, to be determined by the Board of Standardization, purchases may be made without advertising. When the contract or the contract and bond for furnishing the supplies for which the proposals were solicited shall have been fully executed according to law, or when the furnishing of supplies shall have been awarded, the Supply Commissioner shall return to every unsuccessful bidder the check by him deposited as hereinbefore provided. (1948 C., Ch. 23, § 117; 1960 C., § 86.050; 1994 C., § 5.58.050.)

City Counselor Ops.: 8684

5.58.060 Successful bidder certified check.

The Supply Commissioner shall, upon awarding the contract for furnishing supplies, or the furnishing of supplies not under formal contract, deliver the certified check deposited by the successful bidder to whom the contract for furnishing shall have been awarded, to the City Treasurer, who shall receive and credit the amount so deposited to the account of "contracts and other deposits fund," and shall issue duplicate receipts therefor, specifying the date, amount of money received and from whom, upon account of what proposal; and the authority of this chapter. One receipt shall be delivered to the Comptroller, and one to the Supply Commissioner, each conditioned that if the bidder shall fully execute according to law the contract or the contract and bond requisite for the furnishing of the supplies awarded to him, or when supplies are to be furnished not under formal contract shall furnish the supplies and in a manner satisfactory to the Supply Commissioner, then the Treasurer shall repay to the successful bidder or his order the amount deposited on the surrender to the Treasurer of the warrant required in this chapter to be issued to every successful bidder. (1948 C., Ch. 23, § 118; 1960 C., § 86.060; 1994 C., § 5.58.060.)

5.58.070 Warrant.

When the contract or the contract and bond requisite for furnishing supplies shall have been fully exe-

cuted according to law, or when supplies to be furnished not under formal contract shall have been furnished and to the satisfaction of the Supply Commissioner, the Supply Commissioner shall issue to every successful bidder who shall have made the required deposit, an order directing the Comptroller to deliver to the party named in the Supply Commissioner's receipt a warrant directing the Treasurer to pay to such party the amount stated in the receipt.

The Comptroller, upon surrender to him of the Supply Commissioner's order, shall draw a warrant directing the City Treasurer to pay to the order of the party named in the Supply Commissioner's order the amount therein stated. The City Treasurer shall, upon the surrender of the warrant, pay to the order of the successful bidder the amount therein stated. (1948 C., Ch. 23, § 119; 1960 C., § 86.070; 1994 C., § 5.58.070.)

City Counselor Ops.: 8010

5.58.080 Failure to fulfill contract.

If a bidder shall have been awarded a contract for furnishing supplies, but shall fail to execute the contract or the contract and bond according to law, the Treasurer shall, upon notification from the Supply Commissioner to that effect, retain the amount deposited by the bidder. Or, if a bidder shall have been awarded the furnishing of supplies not under formal contract, but shall fail to fully furnish the same according to the terms of the proposal and bid and to the satisfaction of the Supply Commissioner, the Treasurer shall, upon notification from the Supply Commissioner to that effect, retain the amount deposited by such bidder, and the amount so retained shall be recovered into the general fund of the Treasurer. (1948 C., Ch. 23, § 120; 1960 C., § 86.080; 1994 C., § 5.58.080.)

5.58.090 Advertisements for food, drugs and fuel.

When the Board of Standardization deems it necessary and proper and to the best interest of the City, the Supply Commissioner shall advertise for proposals and enter into contracts on the part of the City for furnishing, for a period not to exceed one year, all fuel, milk, ice, meat, butter, lard, fish, eggs, poultry, bread, gasoline, flour, corn meal, hay, corn, oats, ground feed, and all groceries and drugs not otherwise contracted for as may be needed for the use of all City offices and all other departments of the City, the articles to be delivered as required, from time to time, at the different institutions and departments of the City, and he shall require a good and sufficient bond for the faithful performance of such contracts, which shall be approved by the Comptroller. (1948 C., Ch. 23, § 121; 1960 C., § 86.090; 1994 C., § 5.58.090; Ord. No. 47423, § 1, 1955.)

5.58.100 Perishable articles.

All perishable articles, such as fruit and vegetables, that may be required for the use of the hospitals, infirmary and workhouse shall be purchased by the Supply Commissioner, at the best possible rates, on the requisition signed by the proper officer in charge of the named City departments. All such purchases shall be approved by the Comptroller before they shall be binding on the City. (1948 C., Ch. 23, § 123; 1960 C., § 86.100; 1994 C., § 5.58.100.)

5.58.110 Requisition for supplies not contracted.

Whenever any institution or department of the City, through the officer in charge thereof, shall make a requisition on the Supply Commissioner for any articles for which there shall be no contract as provided for in Section 5.58.090 and when the amount to be purchased shall exceed the sum of seven thousand dollars for any one article, and when the delivery of same is not to be continuous, the Supply Commissioner shall advertise for proposals for the furnishing of such articles, and the award on such proposals shall be approved by the Comptroller, the same as is provided for in Section 5.58.150; provided that when any article shall be purchased by the Commissioner as provided for above, and the delivery of the same is to be completed after thirty days, he shall enter into contract for same as is provided for in Section 5.58.160. (1948 C., Ch. 23, § 124; 1960 C., § 86.110; 1994 C., § 5.58.110; Ord. No. 59582, § 1, 1985; Ord. No. 47423, § 2, 1955.)

City Counselor Ops.: 8077

5.58.120 Purchase of fire engines and other apparatus.

The Supply Commissioner shall purchase the engines and other apparatus for the suppression or extinguishment of fire and the protection of life and property that may be needed by the Fire Department, when the purchase of such articles is recommended by the Chief of the Fire Department and approved by the Mayor; provided, however, the Board of Aldermen shall have by ordinance provided for and appropriated the funds to meet such purchase. (1948 C., Ch. 23, § 126; 1960 C., § 86.120; 1994 C., § 5.58.120.)

City Counselor Ops.: 8077

5.58.130 Purchase of vehicles.

The Supply Commissioner shall purchase all motor and other vehicles, horses, mules, wagons, carts and ambulances that may be needed for the several institutions or departments of the City; provided, that before making the purchases, the requisitions for same shall be signed by the officer in charge of the Department where the articles are needed and approved by the Mayor. (1948 C., Ch. 23, § 127; 1960 C., § 86.130; 1994 C., § 5.58.130.)

City Counselor Ops.: 8077

5.58.140 Examination of articles—Memorandum.

It shall be the duty of the Supply Commissioner to examine personally the articles that have been purchased by him, and delivered to the several institutions or departments of the City, and to ascertain if the articles are of the standard kind and quality as required by the terms of sale. If he shall find inferior articles have been delivered, he shall at once reject all such articles and shall not certify the bill for the same for payment, and report all the facts to the Mayor.

It shall be the duty of the Supply Commissioner whenever supplies of any sort are furnished to any institution or department of the City government, to send with the supplies a memorandum, stating the quantity, quality, weight or measure and price of each article sent, which memorandum shall be returned to the Supply Commissioner with the indorsement thereon of the Superintendent or other person in charge of the department or institution as to its correctness, except in respect to the price thereof. The Supply Commissioner shall keep all such memorandums or receipts as vouchers for any payment he may make either for goods purchased in the open market or under advertisement. (1948 C., Ch. 23, § 128; 1960 C., § 86.140; 1994 C., § 5.58.140.)

5.58.150 Approval of purchases.

It shall be the duty of the Supply Commissioner to approve, if correct, all purchases for supplies furnished the City, whether purchased under any contract with the City or otherwise. If a purchase is made under any contract, the Supply Commissioner shall state on the bill of purchase the date of the contract and the date of the approval by the Mayor. If the purchase is not made under any contract, it shall be approved by the Comptroller, and a certified copy of the requisition for the articles mentioned in such bill shall be attached to the same. The Comptroller shall not audit and allow any bills for supplies unless the foregoing provisions are complied with. (1948 C., Ch. 23, § 129; 1960 C., § 86.150; 1994 C., § 5.58.150.)

City Counselor Ops.: 7927

5.58.160 Bonds for performance of contracts—Delivery—Packaging.

The Supply Commissioner may require all parties contracting through his department to give good and sufficient bond for the faithful performance of the contracts, to be approved by the Mayor. All contracts shall contain a clause that the articles to be furnished are to be delivered to the various City institutions or departments free of charge for transportation, and that the City shall allow no charge for packages. (1948 C., Ch. 23, § 130; 1960 C., § 86.160; 1994 C., § 5.58.160; Ord. No. 68297, § 1, 2-16-2009.)

5.58.170 Declining bids.

When the Supply Commissioner finds any party engaged in selling or delivering any article to the City who has failed or refuses to comply with the terms of his contract or agreement, or when a party fails to make restitution to the City for any loss the City has met by failure or neglect on his part to comply with the terms of his agreement, then the Supply Commissioner, with the consent and approval of the Mayor, shall decline to receive any further bids from such party for any articles to be furnished to the City. (1948 C., Ch. 23, § 131; 1960 C., § 86.170; 1994 C., § 5.58.170.)

Chapter 5.59

ST. LOUIS HOPE FOR THE HOMELESS FUND

Sections:

5.59.010	**St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund established.**
5.59.020	**Excess payment disposition.**
5.59.030	**Deposit in St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund.**
5.59.040	**Use of funds.**

5.59.010 St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund established.

The Comptroller is authorized and directed to establish a fund to be designated as the "St. Louis Hope

for the Homeless Fund" for the purpose eliminating homelessness in the City of St. Louis. The Comptroller is authorized and directed to establish a fund to be designated as the "Heat-Up St. Louis Fund" to provide emergency utility assistance for the health and safety of low income families. All interest earned by the funds deposited in such special accounts shall be retained in the account to be appropriated according to provisions of this chapter. All expenditures from such funds shall be appropriated in accordance with applicable law. (1994 C., § 5.59.010; Ord. No. 68816, § 1, 12-21-2010.)

5.59.020 Excess payment disposition.

When any person, firm or corporation participating in the "St. Louis Hope for the Homeless Fund" or the "Heat-Up St. Louis Fund" program pays an amount in excess of the amount due on any water bill, personal property or real estate tax bill the Collector of Revenue shall remit to the Comptroller the excess amount on a monthly basis. (1994 C., § 5.59.020; Ord. No. 68816, § 2, 12-21-2010.)

5.59.030 Deposit in St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund.

The Comptroller, upon receipt of such excess payments designated for the "St. Louis Hope for the Homeless Fund" program remitted by the Collector, shall place said receipted payments in the Affordable Housing Trust Fund, as defined under Ordinance 65132, codified in Chapter 3.59 of the Revised Code of the City of St. Louis. The Comptroller, upon receipt of such excess payments designated for the "Heat-Up St. Louis Fund" program remitted by the Collector, shall place said receipted payments in the "Heat-Up St. Louis Fund" established in Section 5.59.010. (1994 C., § 5.59.030; Ord. No. 68816, § 3, 12-21-2010.)

5.59.040 Use of funds.

Funds maintained in "St. Louis Hope for the Homeless Fund" account shall only be used for purposes relating to the Affordable Housing Trust Fund and targeted to St. Louis City residents earning at or below twenty percent (20%) of the area median income as described under Ordinance 65132, codified in Chapter 3.59 of the Revised Code of the City of St. Louis.

The Affordable Housing Commission shall provide annually to all members of the Board of Aldermen a report detailing the use of funds provided by the "St. Louis Hope for the Homeless Fund."

Funds maintained in the "Heat-Up St. Louis Fund" account shall only be used for purposes relating to the mission of Heat-Up St. Louis, Inc.

Heat-Up St. Louis, Inc. shall provide annually to all members of the Board of Aldermen a report detailing the use of funds provided by the "Heat-Up St. Louis Fund." (1994 C., § 5.59.040; Ord. No. 68816, § 4, 12-21-2010.)

Chapter 5.60

SALE OF SURPLUS AND CONDEMNED PROPERTY

City Counselor Ops.: 7917, 10438

Sections:

5.60.010 Procedure.

5.60.020 Disposition of proceeds.

5.60.025 Donation of fire suppression and protection equipment.

5.60.027 Donation of surplus property.

5.60.010 Procedure.

The Supply Commissioner, when directed by the Comptroller, shall advertise in newspaper of general circulation doing City advertising for at least three days, for proposals for the purchase by bid or public auction of all surplus, condemned or other refuse property under his control. Such advertisement shall state specifically the character and quality of the article to be disposed of, the time and place, when and where bids shall be opened or when and where the Supply Commissioner shall hold a public auction. Provided, however, the right of Comptroller to reject any or all bids or offers at public auction is to be reserved, and that any rejection or award be done with the consent and approval of the Mayor. (1948 C., Ch. 23, § 132; 1960 C., § 87.010; 1994 C., § 5.60.010; Ord. No. 58440, § 1, 1981.)

5.60.020 Disposition of proceeds.

The money received from the sale of all surplus, condemned or other refuse property, shall, within one week from the day of sale, be paid by the Supply Commissioner into the City Treasury, taking the Treasurer's receipt in duplicate therefor, and filing one of those receipts with the Comptroller. (1948 C., Ch. 23, § 133; 1960 C., § 87.020; 1994 C., § 5.60.020.)

5.60.025 Donation of fire suppression and protection equipment.

A. Notwithstanding the provisions of any other ordinance, the Supply Commissioner is authorized to

donate, upon approval of the Board of Standardization, used equipment to suppress fire or fire protection clothing to another fire department, association or district if the following conditions are met: (1) such equipment is approved by the state Fire Marshal or his designee; (2) the receiving agency demonstrates to the state Fire Marshal's Office and the Supply Commissioner that the equipment received works properly; and (3) the Supply Commission informs the receiving agency in writing of any defects in the equipment about which is known. The provisions of this section shall not authorize the Supply Commissioner to donate motor vehicles used to suppress fires.

B. If any other conditions in Subsection A of this section are not met, the offer of donation shall be withdrawn and the equipment or clothing shall be returned to the City and shall remain the property of the City. (1994 C., § 5.60.025; Ord. No. 66438, §§ 1, 2, 2004.)

5.60.027 Donation of surplus property.

A. Notwithstanding the provisions of any other ordinance concerning the disposition of surplus property, the Supply Commissioner, upon approval of the Board of Standardization, may donate to not-for-profit corporations or museums surplus property that has educational or historical value if said property will be accessible to the general public.

B. The Board of Standardization shall promulgate rules and regulations to further the intent of the ordinance codified in this section. (1994 C., § 5.60.027; Ord. No. 67085, §§ 1, 2, 2006.)

Chapter 5.62

MULTIGRAPH AND STORES SECTION

Sections:

5.62.010 Created.

5.62.020 Employees—Purchase of Supplies.

5.62.030 Operation.

5.62.010 Created.

There is created in the office of the Supply Commissioner a section to be known as "multigraph and stores section." (1948 C., Ch. 23, § 134; 1960 C., § 88.010; 1994 C., § 5.62.010.)

Charter:

Art. XV § 30 Public printing and publishing

5.62.020 Employees—Purchase of Supplies.

To enable the operation of the multigraph and stores section, the Supply Commissioner is authorized to employ the necessary employees therefor, such employees to be employed in accordance with the Charter and ordinances of the City, and to purchase equipment and supplies necessary in carrying out effectively the operation of the section created by Section 5.62.010. (1948 C., Ch. 23, § 135; 1960 C., § 88.020; 1994 C., § 5.62.020.)

5.62.030 Operation.

The intent of this chapter is to install multigraph equipment and does not contemplate the installation of printing presses requiring the services of journeymen printers. The determination of the extent to which operation of this section shall go in the multigraphing of forms, etc., used by the City and the manner in which stationery supplies shall be purchased and distributed, shall be fixed by the Board of Standardization. (1948 C., Ch. 23, § 136; 1960 C., § 88.030; 1994 C., § 5.62.030.)

Chapter 5.64

STANDARDIZATION BOARD

Sections:

5.64.010 Standardization laboratories.

5.64.020 Chief Engineer—Appointment—Employees.

5.64.030 Chief Engineer—Qualifications—Bond.

5.64.010 Standardization laboratories.

Laboratories of the Board of Standardization shall be maintained for the purpose of classifying, testing and standardizing in accordance with the intent of Section 28 of Article XV of the Charter all supplies and materials purchased by the City for municipal purposes. (1948 C., Ch. 23, § 137; 1960 C., § 89.010; 1994 C., § 5.64.010.)

Charter:

Art. XV § 28 Board of standardization

City Counselor Ops.: 9945

5.64.020 Chief Engineer—Appointment—Employees.

The Board of Standardization is authorized to appoint, in accordance with the Charter and ordinances of the City, one chief engineer and such number

of other engineers and employees required in the laboratory. (1948 C., Ch. 23, § 138; 1960 C., § 89.020; 1994 C., § 5.64.020.)

5.64.030 Chief Engineer—Qualifications—Bond.

The engineer in charge shall have been in the active practice of his profession at least five years previous to his appointment and shall give bond to the City in the sum of five thousand dollars. (1948 C., Ch. 23, § 139; 1960 C., § 89.030; 1994 C., § 5.64.030.)

Chapter 5.66

MARRIAGE LICENSE FEES

Prior ordinance history: Ord. 58745

Sections:

5.66.010 Fee imposed.
5.66.020 Payment—Collection.
5.66.030 Monthly report—Deposit of funds—Administration.

5.66.010 Fee imposed.

There is hereby imposed, pursuant to the authority of RSMo 455.205, a fee of five dollars upon the issuance of a marriage license. (1994 C., § 5.66.010; Ord. No. 65105, § 2, 2000.)

Editor's Note:

RSMo 455.205 is now RSMo 448.445 (2016).

5.66.020 Payment—Collection.

The fee imposed shall be paid by the person applying for the license and shall be collected by the Recorder of Deeds at the time the license is issued. (1994 C., § 5.66.020; Ord. No. 65105, § 3, 2000.)

5.66.030 Monthly report—Deposit of funds—Administration.

Monthly, the Recorder of Deeds shall file a verified report with the Clerk of the Board of Aldermen, the Register, the Comptroller and the Director of Human Services of the fees collected pursuant to this chapter. The report may be consolidated with the monthly report of other fees collected by the Recorder of Deeds. Upon filing of the reports the Recorder of Deeds shall forthwith pay over to the Treasurer all fees collected pursuant to this chapter. The Treasurer shall deposit such fees upon receipt in a special fund, and said funds, including interest, are to be expended only to provide financial assistance to shelter for victims of domestic violence as provided in RSMo 455.200—455.230, as amended. The Department of Human Services is hereby designated as the authority to request proposals for funding under this chapter, and all such proposals shall be submitted in accordance with state law and City ordinances. The Department of Human Services is hereby designated as the appropriate authority to administer the allocation and distribution of the funds to shelters for victims of domestic violence. (1994 C., § 5.66.030; Ord. No. 65105, § 4, 2000.)

Chapter 5.68

EMPLOYEE FEE AND SUPPLEMENTAL SALES TAX

For basic sales tax, see Chapter 5.24 of this title.

Cases:

Venue had to be set in St. Louis for an action seeking declaratory judgment and injunctive relief against the City of St. Louis with regard to a taxation ordinance. *State ex rel. City of St. Louis v. Kinder,* 698 S.W. 2d 4 (Mo.banc 1986).

The special employer tax imposed by Ordinance 59112 is invalid because a bill submitted to voter approval shall not contain more than one subject which shall be clearly expressed in the title, pursuant to Charter of the City of St. Louis, Missouri, Art. IV, § 13. *ACI Plastics, Inc. v. City of St. Louis,* 724 S.W. 2d 513 (1987).

Ordinance 59112 is, in fact, a sales tax and it is invalid because its submission to the vote of the people did not substantially comply with § 94.510.1 RSMo. *ACI Plastics. Inc. v. City of St. Louis,* 724 S.W. 2d 513 (1987).

Sections:

5.68.010 Definitions.
5.68.020 Effective date—Exceptions.
5.68.030 Supplemental sales tax—Imposed—Collection.
5.68.040 Supplemental sales tax—Collection agreement.
5.68.050 Employee fee—Collection.
5.68.060 Employee fee—Payment.
5.68.070 Employer fee—Employer obligation.
5.68.080 Fee return—Payment.
5.68.090 Unpaid tax—Interest—Penalties.
5.68.100 Refund claim.
5.68.110 Collector compensation.
5.68.120 Failure to pay fee.
5.68.130 Penalty for violation.

5.68.010 Definitions.

A. The words, terms, and phrases used herein shall have the meanings ascribed to them in RSMo 144.010 to 144.510 as they now exist or as hereafter amended.

B. "Full-time employee" as used herein means an individual person performing work, for remuneration, who is employed for 160 hours or more in any calendar month or a full-time equivalent. Full-time equivalent means each group of two or more part-time employees who in the aggregate are employed by the same employer for 160 hours in any calendar month. (1994 C., § 5.68.010; Ord. No. 59207, § 1(part), 1984; Ord. No. 59112, § 1, 1984.)

5.68.020 Effective date—Exceptions.

Upon the approval of the fee of five dollars per employee per month and the tax of ⅜ of 1% on gross receipts authorized herein by the voters, said tax shall be effective on the first day of the month following the month in which the voters approved said proposition, except that the fee of five dollars per employee per month shall not be imposed on religious and charitable organizations and institutions, not for profit civic, social, services or fraternal organizations or not for profit hospitals or educational institutions. (1994 C., § 5.68.020; Ord. No. 59207, § 1(part), 1984; Ord. No. 59112, § 5, 1984.)

5.68.030 Supplemental sales tax—Imposed—Collection.

A. From and after the effective date of the tax of ⅜ of 1% on gross receipts authorized herein, it shall be the duty of every person selling or furnishing tangible personal property or rendering services subject to the provisions of RSMo 144.010 to 144.510 and 94.540.5 as they now exist or are hereafter amended to file with the Comptroller of the City upon forms provided for that purpose, their gross receipts for the preceding reporting period. At the time of submitting said statement of gross receipts for each reporting period, such seller shall remit to the Comptroller the tax of ⅜ of 1% for said period.

B. All provisions contained in RSMo 144.010 to 144.510 and 94.540.5 as now existing or hereafter amended, except as modified by Ordinance 59112 and this chapter and RSMo 32.057, the uniform confidentiality provisions, shall apply to the collection of the tax of ⅜ of 1% on gross receipts imposed by Ordinance 59112.

C. The ⅜ of 1% gross receipts tax imposed hereunder on the purchase and sale of motor vehicles shall not be collected and remitted by the seller, but shall be collected by the License Collector from all purchasers residing in the City at the time application is made for a City of St. Louis Motor Vehicle License. It shall be the duty of every such purchaser to provide the License Collector evidence satisfactory to the License Collector showing the purchase price of such motor vehicle. In the event that any agreement is entered into between the City and the Director of Revenue for the State of Missouri for the collection of the ⅜ of 1% gross receipts tax imposed hereunder, such agreement may further provide that the Director of Revenue shall, at the time application is made for a certificate of title, collect the tax authorized herein if the address of the applicant is within the City. (1994 C., § 5.68.030; Ord. No. 59221, § 1(part), 1984; Ord. No. 59207, § 1(part), 1984; Ord. No. 59112, § 6, 1984.)

5.68.040 Supplemental sales tax—Collection agreement.

In lieu of Section 5.68.030, and notwithstanding any provisions of this chapter to the contrary, the Mayor and Comptroller are hereby authorized on behalf of the City to enter into an agreement with the Director of Revenue of the State of Missouri to collect on behalf of the City the ⅜ of 1% gross receipts tax levied by the City. Upon entering into such agreement, it shall be the duty of every person subject to the tax of ⅜ of 1% authorized herein to report and remit to the Director of Revenue of the State of Missouri the tax of ⅜ of 1% authorized herein in lieu of reporting and remitting said taxes to the Comptroller.

Any such agreement shall be in substantially the following form:

Agreement

AN AGREEMENT ("Agreement") entered into this _____ day of _____, 1984, between the City of St. Louis, hereinafter referred to as "City," and the Director of Revenue of the State of Missouri, hereinafter referred to as "Director of Revenue" for the collection by the Director of Revenue of the tax of ⅜ of 1% of gross receipts on behalf of the City.

WHEREAS, the Director of Revenue has been authorized to enter into this Agreement pursuant to the express language of Senate Bill No. 709 Section 9(2)

Truly Agreed and Finally Passed by the 82nd General Assembly granting the Director of Revenue the authority to contract with cities to collect on behalf of such political subdivisions taxes levied by such political subdivisions, pursuant to the legislative history surrounding this legislation supporting such grant of authorization to the Director of Revenue to enter into this Agreement with the City, pursuant to the implied statutory authorization under this legislation to employ all statutorily provided enforcement processes for collection of state taxes to the collection of political subdivision taxes collected on behalf of such political subdivisions, pursuant to the complimentary nature of the enabling and collection statutory provisions for local taxes in RSMo Ch. 94 and pursuant to the home rule charter provisions in the Missouri Constitution granting such cities the power to tax in conjunction with related intergovernmental cooperation statutory provisions; and

WHEREAS, the voters did on June 5, 1984, approve the tax of ⅜ of 1% upon gross receipts; and

WHEREAS, the City is desirous of having said tax collected by the Director of Revenue and the Director of Revenue is willing to undertake the collection of said tax;

NOW, THEREFORE, the City and the Director of Revenue, for the consideration and mutual covenants hereinafter contained and described, do hereby agree as follows;

Article One

(1) From and after the effective date of the tax of ⅜ of 1 percent of gross receipts authorized by Ordinance No. 59119, it shall be the duty of every person selling or furnishing tangible personal property or rendering services subject to the provisions of RSMo 144.010 to 144.510 to collect, file and remit this tax to the Director of Revenue as provided in RSMo 144.080 and RSMo 144.090 as they now exist or are hereinafter amended.

(2) All applicable provisions contained in RSMo 144.010 to 144.510 governing the state sales tax and RSMo 32.057, the uniform confidentiality provision, shall apply to the collection of the tax imposed by Ordinance 59112. The ⅜ of 1 percent of gross receipts tax imposed hereunder on the purchase and sale of motor vehicles shall be collected pursuant to RSMo 94.560.

Article Two

(1) The interest provision in RSMo 144.170 for delinquent sales tax shall apply to all delinquent taxes under Ordinance 59112.

Article Three

(1) The claim for refund provision under RSMo 144.190 for sales tax shall apply to all claims for refund of taxes paid pursuant to Ordinance 59112.

Article Four

(1) All taxes collected by the Director of Revenue under this chapter on behalf of the City, less one percent for cost of collection, shall be collected and treated in the same fashion as the current St. Louis City sales tax. The monies will be distributed to the City Treasurer pursuant to RSMo 94.550(1).

(2) The Director of Revenue and any of his deputies, assistants and employees, who shall have any duties or responsibilities in connection with the collection, deposit, transfer, transmittal, disbursement, safekeeping, accounting, or recording of funds which come into the hands of the Director of Revenue under Ordinance No. 59112 shall meet the bonding requirements established in RSMo 94.550(4).

Article Five

(1) The Director of Revenue agrees to notify the City of all delinquent taxpayers who have either failed to file or remit the sales tax imposed by Ordinance No. 59112 or assignment of any other claims arising against him arising under this Agreement.

Article Six

(1) The City agrees to hold the State of Missouri and the Director of Revenue harmless from any loss, cost or expenses due to or arising from any payments of refunds, assessed damages of any courts or any actions arising directly or indirectly under this Agreement, and it shall be understood by the parties hereto that any claims against the State of Missouri or Director of Revenue will be offset and withheld from future City Sales tax distributions to the City of St. Louis due under this chapter or RSMo 94.550.

Article Seven

(1) The parties to this Agreement agree that either party may cancel or terminate this Agreement upon the giving of a thirty day written notification to the other party.

IN WITNESS WHEREOF, the parties have set their hand and seals the day and year first above written.

Director of Revenue
State of Missouri
By _____
City of St. Louis
By _____
Mayor
By _____
Comptroller
Approved as to form
_____
City Counselor
_____
Register (1994 C., § 5.68.040; Ord. No. 59221, § 1(part), 1984; Ord. No. 59112, § 9, 1984.)

5.68.050 Employee fee—Collection.

Collection of the fee of five dollars per employee per month authorized by this chapter shall be administered by the Collector of Revenue, who may prepare and issue forms, rules and regulations to facilitate compliance with the enforcement of this chapter, including provision for examination and correction of returns and payment alleged or found to be incorrect or to which an underpayment or overpayment is claimed or found to have occurred. Each employer or supposed employer is directed and required to permit the Collector to examine books and records appropriate to the enforcement of this chapter. (1994 C., § 5.68.050; Ord. No. 59251, § 1(part), 1984; Ord. No. 59112, § 10, 1984.)

5.68.060 Employee fee—Payment.

The fee of five dollars per employee per month authorized by this chapter shall be paid by all employers employing persons in the City for the privilege of employing persons in the City, unless specifically exempted in Section Five of Ordinance 59112 as amended by Ordinance 59207. (1994 C., § 5.68.060; Ord. No. 59251, § 1(part), 1984; Ord. No. 59112, § 11, 1984.)

Editor's Note:

Section 5 of Ordinance 59112 is codified in Section 5.68.020.

5.68.070 Employer fee—Employer obligation.

A. The fee of five dollars per employee per month authorized hereby is a fee per employee to whom commission or employment compensation is paid or to whom such commission or compensation has accrued or is shown as a business expense taken under the United States or Missouri income tax law as a cost of doing business or under accounting practices acceptable for said tax purposes to the United States or State of Missouri. The incidence of this fee of five dollars per employee per month shall be upon the employer alone and shall not be transferred directly or indirectly to the employee in any circumstances. The fee of five dollars per employee per month shall be computed and levied on the number of full-time employees and full-time equivalents as defined in Section 5.68.010 whose work or service is performed within the City. If work or service of employees is performed partly within and partly without the City, the number of hours any employee works within the City shall be considered and utilized in computation of full-time equivalents as defined in Section One of Ordinance 59112 as amended by Ordinance 59207.

B. If it is impractical to apportion such work or service aforesaid either because of the peculiar nature thereof or on account of the unusual bases of compensation, or for any other similar reason, then the numbers of such employees attributable to work performed or services rendered in the City shall be determined in accordance with rules and regulations adopted or promulgated by the Collector of Revenue for this purpose, and in furtherance of the purposes of this chapter. (1994 C., § 5.68.070; Ord. No. 59251, § 1(part), 1984; Ord. No. 59112, § 12, 1984.)

Editor's Note:

Section 1 of Ordinance 59112 is codified in Section 5.68.010.

5.68.080 Fee return—Payment.

Every employer subject to the tax of five dollars per employee per month shall quarterly makes his return and pay to the Collector, on or before the last day of July, October, January and April of each year, the amount of tax due for the three calendar months next preceding the month in which the return is to be filed. Such return shall be on a form or forms obtainable from the Collector and shall be subject to the rules and regulations prescribed therefor by the Collector. (1994 C., § 5.68.080; Ord. No. 59251, § 1, 1984.)

5.68.090 Unpaid tax—Interest—Penalties.

A. All taxes remaining unpaid after they have become due as provided in Section 5.68.090 shall bear interest at the rate of one percent per month or fraction thereof and the delinquent taxpayer shall be liable for

the tax and interest. In addition thereto any taxpayer failing to pay the tax of five dollars per employee per month shall be liable for a penalty of five percent of the amount of the unpaid tax for each month or fraction of a month during which failure to pay continues, with the penalty not to exceed twenty-five percent of the total tax shown to be due.

B. The tax of five dollars per employee per month, together with all interest and penalties, shall be recoverable by the City as other debts of like amounts are recoverable. (1994 C., § 5.68.090; Ord. No. 59251, § 4, 1984.)

5.68.100 Refund claim.

Any claim for refund of the tax of five dollars per employee per month, or any part thereof, shall be made in writing to the Collector within one year of the date of payment. The Collector may refund any amount determined by him to have been mistakenly or erroneously paid by such taxpayer. (1994 C., § 5.68.100; Ord. No. 59251, § 5, 1984.)

5.68.110 Collector compensation.

The compensation payable to the Collector for collecting the tax shall be that commission allowed by RSMo 82.650 (1978) for the collection of City Earnings Tax. (1994 C., § 5.68.110; Ord. No. 59251, § 7, 1984.)

5.68.120 Failure to pay fee.

Failure to pay all or any part of an installment of the fee of five dollars per employee per month or to file a statement of gross receipts and pay the tax of ⅜ of 1% upon gross receipts authorized by this chapter is punishable pursuant to Section 1.12.010, Revised Code of the City of St. Louis 1980. (1994 C., § 5.68.120; Ord. No. 59112, § 14, 1984.)

5.68.130 Penalty for violation.

Any person or taxpayer who shall fail, neglect or refuse to make any return required by this chapter, or any person or taxpayer who shall refuse to permit the Collector, or his duly authorized deputy or agent, to examine his books, records or papers, or who shall knowingly make an incomplete, false or fraudulent return or who shall attempt to do anything whatsoever to avoid the full disclosure of the number of full-time employees, shall be guilty of a misdemeanor and shall be subject to a fine of not more than five hundred dollars or to imprisonment for not more than six months, or to both fine and imprisonment. (1994 C., § 5.68.130; Ord. No. 59251, § 3, 1984.)

Chapter 5.70

REAL ESTATE TITLE CONVEYANCE

Sections:

5.70.010	**Certificate of Value—Filing—Panel locator number.**
5.70.020	**Certificate of Value—Filing requirements—Exceptions—Penalty.**
5.70.030	**Certificate of Value—Required information—Exceptions.**
5.70.040	**Responsibility for filing and execution.**
5.70.050	**Forms.**
5.70.060	**Penalty for violation.**

5.70.010 Certificate of Value—Filing—Panel locator number.

Before any deed or other instrument of conveyance of title to real estate in the City is presented to the Recorder of Deeds for recordation, the Grantees in such deed or other instrument, or their authorized representative shall:

A. File a Certificate of Value with the Assessor, who shall retain same and return a copy of the filed Certificate to the Grantee; and

B. Obtain from the Assessor the parcel locator number of each parcel described in said deed or instrument and same shall be affixed to the face of said deed or instrument. (1994 C., § 5.70.010; Ord. No. 60506, § 1, 1987.)

5.70.020 Certificate of Value—Filing requirements—Exceptions—Penalty.

A. The Certificate of Value shall be executed by Grantees or their authorized representatives on forms approved and supplied without charge by the Assessor and shall contain the street address of the grantees' principal place of residence, sufficient information to determine the full sales price and all other considerations for the property. The Grantees may attach to the Certificate such additional information pertaining to the true value of the property as they desire. In the event that such grantee is a partnership, corporation or other business entity the Certificate of Value shall contain the street address of the grantees' principal place of business and the name of at least one officer or share-

holder of such partnership, corporation or other business entity and the street address of such person's principal place of residence. For purposes of this section a post office box shall not be accepted as a residential or business street address.

B. On or before August 1 of the first year after the year in which the provisions of the ordinance codified in this section become effective, and every two years thereafter, every owner of real property within the City of St. Louis shall file with the office of the Assessor, on a form to be provided by and mailed by the Assessor, such person's name and the street address of such person's principal place of residence. The Assessor shall mail said forms to the address of record of said property owner on or before June 1.

C. In the event that such owner is a partnership, corporation or other business entity such entity shall file with the office of the Assessor, on a form to be provided by the Assessor, the street address of the entities principal place of business and the name of at least one officer or shareholder of such partnership, corporation or other business entity and the street address of such person's principal place of residence.

D. For purposes of this section a post office box shall not be accepted as a residential street address.

E. The provisions of Subsection B of this section shall not apply to any property which, according to the records maintained by the Assessor, is owned by a public utility, a railroad corporation as defined by RSMo 386.020, an entity created by state statute or a political subdivision of the State of Missouri.

F. Any person, partnership, corporation or other business entity who fails to provide the information in the manner required by the provisions of this section, or who shall knowingly provide false or fraudulent information, shall be in violation of this section and shall be subject to a fine of not more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or both a fine and imprisonment. Failure to comply with the provisions of this section shall constitute grounds, for property which is the subject of such certificate of value or filing, for condemnation for occupancy by the Building Commissioner.

G. It shall be a defense to an allegation that a person has failed to provide the information required by Subsection B of this section if such person is both the owner and resident of such property, or that the information from a prior filing or certificate of value is currently in compliance with the information required by the provisions of this section.

H. The provisions of this section pertaining to mailing of notices by the Assessor and filing before August 1 by owners of real property shall only be effective in years when the City of St. Louis adopts an appropriation ordinance providing for the funding of the administrative costs which may reasonably result from the implementation of such provisions. (1994 C., § 5.70.020; Ord. No. 65194, §§ 1—8, 2001; Ord. No. 60506, § 2, 1987.)

5.70.030 Certificate of Value—Required information—Exceptions.

Information concerning full sales price and other considerations is not required to be included in a Certificate of Value before a transfer of title which is:

A. To or from the United States, the State of Missouri, or any other instrumentalities, agencies, or political subdivisions thereof;

B. Made solely for the purpose of confirming, correcting, modifying or supplementing a deed previously recorded, and without additional consideration;

C. Made solely for the purpose of securing or releasing security for a debt or other obligations;

D. On sales for delinquent taxes;

E. To cemetery lots;

F. By lease or other transfer of severed mineral interests;

G. By order of any court;

H. By deed between husband and wife, parent and child, without actual consideration; by deeds to or from a family corporation or partnership when all shares of stock are owned by members of a family, or a trust created for the benefit of a member of that family, related to one another within the fourth degree of kindred, and their spouses, for no consideration;

I. By deed of partition;

J. By deed made pursuant to merger, consolidation, sale or transfer of the assets of a corporation pursuant to a plan of merger or consolidation filed with the Missouri Secretary of State;

K. By executory contract for deed;

L. By deed of distribution executed by a personal representative conveying to devisees or heirs property passing by testate or intestate succession;

M. By lease or easement;

N. By deed which conveys property held in the name of any partnership, not a family, to any partner or his or her spouse. (1994 C., § 5.70.030; Ord. No. 60506, § 3, 1987.)

5.70.040 Responsibility for filing and execution.

The grantees in a deed or interest of conveyance of title to real estate and any person or legal entity authorized by such grantees to present such deed or other instrument for recordation (including each responsible officer and agent of any of the foregoing) are responsible for the filing and execution of a Certificate of Value pursuant to Sections 5.70.010 and 5.70.020 hereof. (1994 C., § 5.70.040; Ord. No. 60506, § 4, 1987.)

5.70.050 Forms.

The Assessor shall prepare appropriate forms to implement this chapter and make said forms available at the office of the Recorder of Deeds and at the Assessor's Office to any persons requesting same. Section 5.70.060 shall not become effective, nor shall such forms be required to be available, until thirty days after the effective date of the ordinance codified in this chapter or December 1, 1987, whichever is later. (1994 C., § 5.70.050; Ord. No. 60506, § 6, 1987.)

5.70.060 Penalty for violation.

It is a violation of this chapter for any person or legal entity responsible for filing a Certificate of Value pursuant to this chapter to:

A. Fail to have a Certificate of Value on file with the Assessor's Office before any recordation of a deed or other instrument of conveyance of title to real estate subsequent to the effective date of the ordinance codified in this chapter; or

B. Allow a Certificate of Value known by said person or legal entity to be false to remain on file with the Assessor's Office. Each day after the recordation of a deed or instrument with respect to which a Certificate of Value has not been filed, and each day on which a false Certificate of Value is allowed to remain on file, shall constitute a separate violation of this chapter, and each person who is convicted of any such violation shall be punished by a fine of not more than five hundred dollars ($500.00) for each such violation. (1994 C., § 5.70.060; Ord. No. 60506, § 5, 1987.)

Chapter 5.72

PARK CAPITAL IMPROVEMENTS FUND APPORTIONMENT

Sections:

5.72.010 General revenue expenditures on parks not to decrease if state sales tax funds become available.

5.72.020 Annual appropriation ordinance.

5.72.030 Apportionment of state funds among historical, cultural, performing or fine arts organizations or institutions.

5.72.040 Apportionment of state funds among parks for capital improvements.

5.72.010 General revenue expenditures on parks not to decrease if state sales tax funds become available.

If any funds are made available by the State of Missouri pursuant to a sales tax for acquisition, development, rehabilitation and/or maintenance of local public parks and public recreation facilities in the City in any fiscal year, the City shall not decrease its general revenue expenditures for such purposes in said fiscal year below the amount expended from such general revenues for the same purposes in the fiscal year in which said sales tax is enacted. (1994 C., § 5.72.010; Ord. No. 61008, § 1, 1988.)

5.72.020 Annual appropriation ordinance.

The Board of Aldermen shall appropriate each year by independent ordinance recommended by the Capital Committee established pursuant to Ordinance 60419, codified in Chapter 5.35, all funds made available by the state pursuant to a sales tax for local parks.

A. Such ordinance shall contain:

1. An appropriation not to exceed the amount permitted by state legislation for grants to and contracts with historical, cultural, performing or fine arts organizations or institutions, as permitted by state law, to be awarded as provided in Section 5.72.030 of this chapter;

2. Line item appropriations for specific projects in City parks in the amounts appropriated as provided in Section 5.72.040 of this chapter.

B. Such ordinance shall not appropriate any funds for additional City parks or expansion of any City parks. Except for funds appropriated pursuant to Subsection A.1 of this section, funds shall be expended

only for capital improvement purposes, and no funds shall be expended for rolling stock, office supplies or master planning. (1994 C., § 5.72.020; Ord. No. 61008, § 2, 1988.)

5.72.030 Apportionment of state funds among historical, cultural, performing or fine arts organizations or institutions.

The Board of Aldermen shall establish each year by ordinance the percentage, if any, of funds made available by the state pursuant to a sales tax for parks which shall be used for grants to or contractual services with historical, cultural, performing or fine arts organizations or institutions, as permitted by state law, to provide services or performances in parks or recreation centers located in the City. Not more than sixty (60) days following the approval of said ordinance by the Mayor or its approval over his veto, the Director of Parks, Recreation and Forestry shall publicly advertise its "Request for Proposals" from any such interested group, and shall forward to the Board of Aldermen a draft resolution approving any or all eligible organizations responding to said Request; provided, however, that the funding recommended pursuant to such resolution shall not exceed the amount established by ordinance. The Director of Parks, Recreation and Forestry may contract with the St. Louis Regional Cultural and Performing Arts Development Commission for services related to the solicitation and evaluation of proposals required by this section. No funds shall be granted to or contracts executed with any such organization until such resolution, as submitted or as amended, has been approved by the Board of Aldermen. (1994 C., § 5.72.030; Ord. No. 61008, § 3, 1988.)

5.72.040 Apportionment of state funds among parks for capital improvements.

Each year, all funds made available by the State of Missouri pursuant to a sales tax for parks shall be apportioned by ordinance according to the following formula: After deducting an amount, if any, as provided in Section 5.72.030 of this chapter, each City park shall receive the percentage of the remaining funds made available by the state for capital improvements determined by taking the acreage of the park divided by the total acreage of all City parks; provided, however, that the allocation of any park which would receive an allocation of less than ten thousand dollars ($10,000.00) in any given fiscal year pursuant to this formula shall be placed in a Small Parks Fund and the Small Parks Fund shall be used to fund improvements in parks whose allocations have been placed in this fund in accordance with priorities recommended by the Capital Committee and approved by the Board of Aldermen of the City in the same ordinance each year. (1994 C., § 5.72.040; Ord. No. 61008, § 4, 1988.)

Chapter 5.74

USE OF PARK FUNDS

Sections:

5.74.010 Definitions.
5.74.020 Special fund.
5.74.030 Expenditure for capital improvements.
5.74.040 Donations to be accepted.
5.74.050 Forest Park fund.
5.74.055 Lafayette Square Park fund.
5.74.060 Source of revenue.
5.74.070 Use of funds.
5.74.080 Conflicting provisions.

5.74.010 Definitions.

As used in this chapter:

A. "Capital improvement" means any action or expenditure taken or made to replace, install, refurbish, rehabilitate, reconstruct, construct, update or otherwise improve the infrastructure of the City's parks, including, for example, but not limited to, roads, bridges, sidewalks, lakes, ponds, statuary, fountains, pavilions, gazebos, rest houses, lighting systems, athletic facilities, toilets, parking facilities, curbs, sewers and signage.

B. "Land" means the entire physical territory within all public parks, plazas and squares owned by or hereafter acquired or established by the City and the space above and the earth or water below the surface thereof, including permanent or temporary buildings or structures of any kind and parking lots or facilities of any kind.

C. "Park" means all City parks (including Tower Grove Park) and all public squares and plazas.

D. "Use" means to conduct any activity upon, to have the right to occupy to the exclusion of others or to exclude others (whether or not exercised), to have the right to exclude others from using, or to have the right to construct or maintain any permanent or temporary building, structure or parking lot or facility on, above,

or below. (1994 C., § 5.74.010; Ord. No. 61988, § 1, 1990.)

5.74.020 Special fund.

A. On and after July 1, 1991, all revenues (except as provided in Subsection B of this section) of the City derived from users or purchasers of park land, and on or after the effective date of the ordinance codified in this chapter [August 3, 1990], all donations of money (except as provided in Subsection C of this section) to the City for the benefit of a specific park, and interest on such revenues and donations, shall be held by the Comptroller in a special fund for the account of the Department of Parks, Recreation and Forestry, for the park in which the land used or sold is located or for which the donation was made.

B. Subsection A of this section is not applicable to revenues, derived from fees or charges collected from the general public for daily, seasonal, or other periodic use of park land or recreational or athletic facilities located thereon, such as picnic sites or playing fields, or for permits for special events, such as charity walks or runs, or to revenues derived from concession contracts permitting concession operations in more than one park.

C. Subsection A of this section is not applicable to donations made for more than one park, to donations expressly made for park operations or maintenance, or to any donation for any other purpose inconsistent herewith.

D. Funds derived from use of the Park to be used as set forth in the A&R maintenance cooperation agreement, including, without limitation, keeping the revenues earned from operation and use of the Steinberg Facility out of the Forest Park Fund so that they may be used by the operator of the Steinberg Facility for the purposes set forth in the A&R maintenance cooperation agreement.

(1994 C., § 5.74.020; Ord. No. 71893, § 2, 8-28-2024; Ord. No. 61988, § 2, 1990.)

5.74.030 Expenditure for capital improvements.

No money in any such special fund shall be expended, used, or encumbered for any purpose except capital improvements in the park for which the fund is held, pursuant to an appropriations chapter. (1994 C., § 5.74.030; Ord. No. 61988, § 3, 1990.)

5.74.040 Donations to be accepted.

The Comptroller is hereby authorized and directed to accept, on behalf of the City, donations of money to the City for the benefit of any park of the City subject, however, to the provisions of this chapter. (1994 C., § 5.74.040; Ord. No. 61988, § 4, 1990.)

5.74.050 Forest Park fund.

The special fund required by Section 5.74.020.A of this chapter with respect to Forest Park shall be the "Forest Park Fund" created and existing pursuant to Ordinance 51336. (1994 C., § 5.74.050; Ord. No. 61988, § 5, 1990.)

5.74.055 Lafayette Square Park fund.

A. In addition to revenues from those sources specified in Section 5.74.020 of the Revised Code, City of St. Louis and notwithstanding Section 5.74.020.B, Revised Code to the contrary, all revenues derived from fees or charges collected by the City from members of the general public for daily, seasonal or other periodic use of Lafayette Square Park land or recreational and athletic facilities located thereon, for admission to or for private events in City-operated facilities in Lafayette Square Park, and for permits for special events in Lafayette Square Park, shall be held in a special fund for Lafayette Square Park as created in Subsection B of this section and shall be subject to Chapter 5.74 of the Revised Code.

B. Lafayette Square Park Fund established. The Comptroller is authorized and directed to establish a fund to be designated as the "Lafayette Square Park Fund" for the account of the Department of Parks, Recreation and Forestry. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this section. All expenditures from such fund shall be appropriated in accordance with applicable law. (1994 C., § 5.74.055; Ord. No. 69119, §§ 1, 2, 3-28-2012.)

5.74.060 Source of revenue.

Revenues derived from the following sources in the following parks shall be held in each such park's special fund, as provided by Section 5.74.020 (and Section 5.74.050 in the case of Forest Park) and used only as provided by such section. This enumeration is by way of specification and example and is not intended to be inclusive or to limit the application of this chapter:

A. *Forest Park.*

1. Rental payments by Barnes Hospital for the use of park land for a parking facility pursuant to a

lease authorized by Ordinance 56576, approved July 17, 1973, as amended by Ordinance 58982, approved December 7, 1983, and any renewals thereof;

2. Rental payments and the one time contribution by Barnes Hospital for an elevated walkway in the park pursuant to a lease authorized by Ordinance 59625, approved November 27, 1985, and any renewals thereof;

3. Rental payments by the American Golf Corporation for the 9- and 18-hole golf courses in the park pursuant to a lease authorized by Ordinance 60284, approved February 24, 1987, and any renewals thereof;

4. Rental payments by the Museum of Science and Natural History Subdistrict for the use of certain park land under and around the McDonnell Planetarium pursuant to a lease authorized by Ordinance 58997, approved December 19, 1983, and any renewals thereof;

5. Rental payments by the Missouri History Museum Subdistrict for the use of certain park land under and around the Jefferson Memorial Building pursuant to a lease authorized by Ordinance 61149, approved December 19, 1988 and any renewals thereof;

6. Rental payments by the St. Louis Ambassadors for the use of the Cabanne House pursuant to a lease authorized by Ordinance 59718, approved February 18, 1986, and any renewals thereof;

7. Rental payments made by the St. Louis Amateur Athletic Association for the use of certain park land for a clubhouse, golf course and tennis facility pursuant to a lease authorized by Ordinance 61843, approved March 5, 1990, and any renewals thereof;

8. The contract price for the use of the Upper Muny Parking Lot by Jewish Hospital pursuant to Contract #233236 dated March 4, 1986 and any renewals thereof;

9. The contract price for the use of the Boathouse and certain concessions in Forest Park by Ando Service Company, Inc. pursuant to Contract #18975, dated April 28, 1987, and any renewals thereof;

10. The contract price, if any, for the use of Dwight F. Davis Tennis Tournament Center by the Dwight F. Davis Memorial Tennis Center Corporation pursuant to Contract #8090 dated June 8, 1987 and Ordinance 52952, approved February 1, 1965, and any renewals thereof; and

B. *Keiner Plaza Park.*

1. Rental payments and receipts accrued in excess of expenditures and not dedicated for related expenditures by the St. Louis Ambassadors, Inc. pursuant to a lease/management agreement authorized by Ordinance 60880, approved May 31, 1988, and any renewals thereof; all to be held in a Keiner Plaza Park Fund created pursuant to this chapter.

C. *Marquette Park.*

1. Rental Payments by the Thomas Dunn Memorials pursuant to a lease authorized by Ordinance 61527, approved July 31, 1989, and any renewals thereof; all to be held in a Marquette Park Fund created pursuant to this chapter.

D. *Penrose Park.*

1. Rental Payments, if any, by the Matthews-Dickey Expansion Fund pursuant to a lease authorized by Ordinance 58136, approved August 22, 1980, and any renewals thereof; all to be held in a Penrose Park Fund created pursuant to this chapter.

(1994 C., § 5.74.060; Ord. No. 71893, § 3, 8-28-2024; Ord. No. 61988, § 6, 1990.)

5.74.070 Use of funds.

This chapter is not intended to amend Ordinance 60419, generally pertaining to capital improvements budgeting; rather, this is intended to particularly and specifically allocate certain revenues for improvements in City parks; provided, however, that if any City park is used or sold in its entirety, the revenues from users or purchasers of such park land, and all interest on such revenues, shall be appropriated only for capital improvements, as defined by this the City parks system or for the acquisition of new City park land. (1994 C., § 5.74.070; Ord. No. 61988, § 7, 1990.)

5.74.080 Conflicting provisions.

In the event any provision of this chapter conflicts with provisions of any other ordinance or ordinances, it is the intent of the Board of Aldermen that this chapter shall be controlling. (1994 C., § 5.74.080; Ord. No. 61988, § 8, 1990.)

Chapter 5.76

"ROUND UP" PROGRAM FUNDS

Sections:

5.76.010 Excess payment disposition.
5.76.020 Deposit in Special Park Fund.
5.76.030 Use of funds.
5.76.040 Capital improvements—Use.
5.76.050 Effective date.

5.76.010 Excess payment disposition.

When any person, firm or corporation participating in the "Round Up" program pays an amount in excess of the amount due on any water bill, personal property or real estate tax bill the Collector of Revenue shall remit to the Comptroller the excess amount on a monthly basis. (1994 C., § 5.76.010; Ord. No. 62196, § 1, 1990.)

5.76.020 Deposit in Special Park Fund.

The Comptroller, upon receipt of such excess payments designated for the "Round Up" program remitted by the Collector, shall place said receipted payments in the "Special Park Fund" established by Ordinance 51336. (1994 C., § 5.76.020; Ord. No. 62196, § 2, 1990.)

5.76.030 Use of funds.

The funds contained in the "Special Park Fund" from the "Round Up" program shall be used for capital improvements in the City parks, except that no funds can be used in any park until all capital improvements have been completed in Forest Park. (1994 C., § 5.76.030; Ord. No. 62196, § 3, 1990.)

5.76.040 Capital improvements—Use.

The Director of Parks, Recreation and Forestry shall recommend the use of said funds to the Parks and Environmental Matters Committee of the Board of Aldermen which shall determine the capital improvements for which the funds should be used, which use shall be consistent with this chapter, and the Director, upon resolution passed by said Committee shall have the authority to prepare the necessary vouchers for said use of funds and the Comptroller, upon receipt of said voucher, shall draw warrants on the Fund. No part of said funds shall be used for any general operating purpose or expense, salaries, or advertising. (1994 C., § 5.76.040; Ord. No. 62196, § 4, 1990.)

5.76.050 Effective date.

The provisions of this chapter shall become effective February 1, 1991, and any excess funds designated for the "Round Up" program received after February 1, 1991, shall be processed pursuant to this chapter. (1994 C., § 5.76.050; Ord. No. 62196, § 5, 1990.)

Chapter 5.78

STREET EXCAVATION RESTORATION PROGRAM FUND

Sections:

5.78.010 Special fund created.

5.78.010 Special fund created.

The Comptroller is authorized and directed to hold fees collected by the Director of Streets as part of the Street Excavation Restoration Program for the purpose of properly sealing the pavement joint of street excavations after the excavation has been completed in a special account. Funds maintained in such special account shall be used only to pay for materials and equipment required to properly seal the pavement joint of street excavations. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this section. All expenditures from such fund shall be appropriated in accordance with applicable law. (1994 C., § 5.78.010; Ord. No. 65104, § 1, 2000.)

Chapter 5.80

RESERVED

Chapter 5.82

RESERVED

Chapter 5.85

FUND 1116 DOWNTOWN VENDING DISTRICT PARKS FUND

Sections:

5.85.010 Special fund created.

5.85.010 Special fund created.

There is hereby appropriated and set apart into a new special Fund 1116 Downtown Vending District Parks Fund from payments to be received from authorized vendors in the Downtown Vending District Twenty Five Thousand Three Hundred Dollars ($25,300.00) for the remainder of the current fiscal year. (1994 C., § 5.85.010; Ord. No. 68949, § 1, 7-12-2011.)

Chapter 5.90

PUBLIC ART TRUST FUND

Sections:

5.90.010 Legislative findings and declarations.

5.90.020 Definitions.

5.90.030 Fund established.

5.90.040 Fund to be administered by the Commission.

5.90.050 Use of funds.

5.90.060 The Regional Arts Commission—Powers and duties.

5.90.070 Other personnel—Duties.

5.90.080 Funding.
5.90.090 Application of funds.
5.90.100 Review procedures.

5.90.010 Legislative findings and declarations.

The Board of Aldermen hereby finds and declares as follows:

A. The presence of works of art and decorative elements in public places in the City enhances the quality of life, promotes the general welfare, maintains the quality of the environment and property values, and enhances the attractiveness of the City for residents and visitors.

B. Identifying locations for public works of art and decorative elements and participating in the building of a public art collection of high quality can be stimulating and unifying for the City and contribute to civic pride reflective of the City's diversity.

C. The encouragement of public art and decorative elements and providing for their funding and maintenance promote the general welfare.

D. Because works of art and decorative elements improve communities and neighborhoods, they should be initiated by community groups as well as being components of projects initiated by the City.

E. The expenditure of public funds for the acquisition and maintenance of works of art and decorative elements as herein provided is for a public purpose. (1994 C., § 5.90.010; Ord. No. 68793, § 1, 11-18-2010.)

5.90.020 Definitions.

As used in this chapter the following terms have the following meanings:

"Acquisition" means the acquisition of a work of art by the City by completed commission, donation, or loan for five years or longer.

"Agency" means any public commission, authority or corporation established or authorized under state law to perform one or more functions on behalf of the City and funded in whole or part with City revenues or funds applied for, granted, or allocated by, to, or on behalf of the City. The terms "Agency" and "City" as used in this chapter do not include the Police Department or Fire Department.

"Artist" means a person who creates an artwork.

"Art-qualified project" means:

1. A construction, renovation or site improvement project of the City or of any Agency intended to preserve or enhance the value of Capital Assets of the City or of any Agency.

"Art-qualified project" does not include: "50-50" sidewalk work pursuant to ordinance 67077; any work, including "St. Louis Works" projects, funded by the Street Improvement Fund established by Ordinances 55852, 55964, 55965 and 55966 as amended; any applications of proceeds of the ½ cent capital improvements sales tax authorized by Ordinance 62885; emergency repairs immediately necessary to preserve public safety; demolitions by the Building Division or ordered by the Building Commissioner to protect the public safety or by the Land Reutilization Authority; lateral sewer line repairs pursuant to Ch. 23.40 of the City Code, 1994; or any project or work which would otherwise be an art-qualified project which is approved by ordinance, or for which a project budget is approved by an agency, or for which a grant application or request which would otherwise be subject to Section 5.90.080.B is made, before July 1, 2011.

"Artwork" or "work of art" means all forms of tangible works of visual art executed in one or more media or materials, including, but not limited to, paintings, sculpture, stained glass, lightworks, fiberworks, reliefs, monuments, fountains, frescoes, murals, collages, statues, photographs, drawings, mobiles, craftworks, kinetic, electronic or functional furnishings, lighting, and artist-designed landscaping.

"Capital asset" means land, structures thereon, and permanent objects in public places. For purposes of this chapter, the term "capital asset" does not include vehicles or heavy equipment.

"City" means the City of St. Louis and any office, department, division, bureau, board, or agency thereof, and any corporation, institute, commission or other entity organized by or acting on behalf of the City or any office, department, division, bureau board or agency thereof.

"Commission" means the Regional Arts Commission.

"Deaccession" means the sale or other disposition of an artwork by the City.

"Eligible private property" means property which is not a public place, whose owner has consented to installation thereon of artworks and/or infrastructure decorations, and which is either open to the public without change during business hours or from which artworks located thereon are conveniently and fully visible.

"Infrastructure decoration" means an object which is part of the urban infrastructure, such as, by way of

example, bridges, street signs, park benches or manhole covers, the appearance of which is enhanced by incorporation of decorative visual elements.

"Project budget" means a projection of cost of an art-qualified project which includes all actual construction, demolition and site work costs, including surveys; architectural and engineering fees; contingency allowances, acquisition costs for real property or interests therein; and financing costs including costs of issuance.

"Public art funds" means all money received from any source by the Public Art Trust Fund established by Section 5.90.030.

"Public place" means areas upon, above, or below municipal buildings, parks, plazas, squares, parkways, rights-of-way, and any space, indoors or outdoors, which is owned or leased or which is being lease-purchased by the City or an agency and which is generally accessible to the public; and any space not on private property which is visible to the public from a sidewalk or street. (1994 C., § 5.90.020; Ord. No. 68793, § 2, 11-18-2010.)

5.90.030 Fund established.

There is hereby established a Public Art Trust Fund of the City, wherein all public art funds shall be held.

The Comptroller shall maintain the Public Art Trust Fund for the receipt of allocations, appropriations, grants and contributions pursuant to this chapter. Allocations for public art funds from art-qualified projects shall be paid to the Public Art Trust Fund at the time of closing of financing for such projects or, if there is no such closing, before any expenditure for construction, renovation or demolition is made. Upon receipt of capital grant funds described in Section 5.90.080.B the portion of such grant funds allocated for public art funds shall be paid immediately by the recipient to the Public Art Trust Fund. Money in the Public Art Trust Fund shall be held in separate art qualified project, City-wide neighborhood project, and administration accounts. Appropriate sub-accounts may be created, and, if required to do so by law or the terms of grants the Comptroller may maintain separate accounts or funds for public art funds which are proceeds of specific bond issues or grants.

Public Art Trust Fund monies are not subject to reversion at the end of fiscal years and shall only be appropriated and expended for public art purposes pursuant to this chapter. Funds held in the Public Art Trust Fund may be appropriated and expended only for specific projects and programs of or affirmatively recommended by the Commission. (1994 C., § 5.90.030; Ord. No. 68793, § 3, 11-18-2010.)

5.90.040 Fund to be administered by the Commission.

The Regional Arts Commission, as established in RSMo Ch. 67, shall administer the Public Arts Trust Fund as described in this chapter. (1994 C., § 5.90.040; Ord. No. 68793, § 4, 11-18-2010.)

5.90.050 Use of funds.

The Public Arts Trust Fund shall only be used for projects within the City of St. Louis or at Lambert Airport. The annual budget for the Fund shall be submitted by the Commission every year and shall be approved by resolution of the Board of Aldermen. (1994 C., § 5.90.050; Ord. No. 68793, § 5, 11-18-2010.)

5.90.060 The Regional Arts Commission—Powers and duties.

The Commission shall:

A. Devise programs and plans and determine policies and guidelines for their implementation and cause the implementation thereof, to increase installation of artworks in public places and on eligible private property;

B. Determine and cause to be implemented policies and procedures consistent herewith for the City's art collection, including policies and procedures for placement and purchase of artworks and infrastructure decorations, acceptance of gifts or loans, conservation and maintenance programs, and deaccession of artworks;

C. Develop and administer a comprehensive management program of the City's art collection which shall include:

1. Establish an accession plan for logging in/accepting works of art into the City-owned collection and an archive system to include factual and legal information about each piece;

2. A regular procedure to assess the condition of artworks and need for repairs and maintenance to ensure that artworks shall be maintained in the best possible condition and, when appropriate, to coordinate with appropriate City departments for responsible maintenance and renovation of the artworks and art sites. Such maintenance shall be paid for out the Public Arts Trust Fund;

3. A plan for removing, relocating and altering artwork. The Commission shall submit such a management program to the City by July 1, 2012;

D. Develop policies for relations with artists concerning the respective rights and duties of the City and artists with respect to artworks created by the artist which become part of the City art collection. Such policies and standard contract provisions shall be developed in consultation with the City Counselor;

E. Develop and maintain a City-wide site inventory for potential permanent and temporary artwork projects;

F. Make recommendations concerning the acceptance of gifts of artworks by the City;

G. Recommend public art and aesthetic enhancement projects for consideration in any project or plan being considered by the City;

H. Devise and oversee public art education programs;

I. Prepare and adopt regulations or standard policies from time to time, consistent with this chapter, for the administration of programs authorized hereby, including, but not limited to, regulations or standard policies for development, review and approval of art projects and artists. (1994 C., § 5.90.060; Ord. No. 68793, § 6, 11-18-2010.)

5.90.070 Other personnel—Duties.

A. All City and Agency personnel shall advise the Commission at the earliest possible time concerning:

1. Existing or planned sites under the informing person's office, department or agency's jurisdiction which may be appropriate for public artworks and aesthetic enhancement projects;

2. Proposed or planned projects involving construction, renovation, or development of any site or facility so as to permit adequate review of the project's potential for incorporation of public artworks or infrastructure decorations;

3. Any advisory, neighborhood or other groups which may be affected by or interested in the development of public art projects;

4. Any ordinances, resolutions or regulations which might be relevant to any public art projects; and

5. Planning processes for neighborhood improvement projects, area development projects, private or public planning studies and/or long-range policy recommendations, which could incorporate or address public art projects.

B. All City and agency personnel shall assist the Commission in the development and implementation of public artworks and infrastructure decoration projects and installation and maintenance of duly authorized artworks and infrastructure decorations at departmental sites. (1994 C., § 5.90.070; Ord. No. 68793, § 7, 11-18-2010.)

5.90.080 Funding.

A. Any art-qualified project administered by any City department or any agency shall include in its project budget an allocation of one percent (1%) of the total amount of such budget prior to such allocation for public art funds unless prohibited by state or federal law. No City or agency personnel shall execute any contract pertaining to an art-qualified project, or authorize the expenditure or payment of any City or agency funds, including proceeds of any bonds issued for an art-qualified project, unless the Comptroller has certified that the art-qualified project complies in all applicable respects with this section.

B. Any request or application by or on behalf of the City and/or any agency including any request or application made jointly with one or more other entities for capital grant funds for art-qualified projects to any public or private body, agency, or federation shall contain a request that one percent (1%) of the total grant funds requested be allocated for public art funds, unless specifically excluded by the granting agency or donor or unless the director or other official in charge of operations of the department or agency applying for the grant certifies in writing to the Commission that a request for an allocation for public arts funds would be detrimental to the application's competitiveness. (1994 C., § 5.90.080; Ord. No. 68793, § 8, 11-18-2010.)

5.90.090 Application of funds.

Public art funds derived from art-qualified projects pursuant to Section 5.90.080.A and from capital grant funds received pursuant to a request or application described in Section 5.90.080.B to the extent permitted under the terms of the grant shall be applied as follows as determined by the Commission:

A. Fifty percent (50%) of such funds shall be allocated for expenses of artworks and infrastructure decorations on eligible private property at the specific project site or in immediately adjacent areas. Eligible expenses are artist and artwork selection, design development, purchase, production, installation and fabrication, and insurance. No such funds may be applied

for standard directional elements or for traditional landscape treatments. If less than the full allocation permitted under this subsection is made the amount not allocated under this subparagraph shall be allocated to the City-wide neighborhood project account of the Public Art Trust Fund, in addition to amounts allocable under Subsection B of this section.

B. Twenty-five percent (25%) of such funds shall be allocated to the City-wide neighborhood project account within the Public Art Trust Fund established by Section 5.90.030, for expenses of artworks and infrastructure decorations as approved by the Commission.

C. Up to 25% of such funds shall be allocated to a program support and conservation account of the Public Art Trust Fund. Eligible costs for payment from this account include, but are not limited to: administrative costs for the Commission, documentation (slides, transparencies and/or photographs) of artworks, professional development, educational programs, including lectures, workshops and symposia, and conservation and maintenance of the City public art collection. (1994 C., § 5.90.090; Ord. No. 68793, § 9, 11-18-2010.)

5.90.100 Review procedures.

A. Artworks and infrastructure decorations funded pursuant to this chapter shall be reviewed and approved by selection panels established by the Commission prior to their approval for funding by the Commission. Such committees shall include representatives of the Commission, and/or the City department or agency developing the project, and members of the public who are residents of the City.

B. Artworks and infrastructure decorations proposed to be funded from the City-wide neighborhood project account within the Public Art Trust Fund shall be reviewed and approved by selection panels established by the Commission prior to their approval for funding by the Commission. Such committees shall include representatives of the Commission, of the ward(s) in the City where the artwork or infrastructure decorations are proposed to be located, and of the City department or agency most directly concerned with the proposed location of the artwork or infrastructure decorations.

C. All such projects shall be open to artists on a national basis, but must have demonstrated support from the local community or neighborhood in which the artwork or project will occur. Any such artwork or infrastructure decorations may be located in public places or on eligible private property.

D. By July 1, 2012, the Commission shall survey the City on a ward by ward basis and determine the number of artworks in public places and infrastructure decorations in each ward.

E. Artworks and infrastructure decorations funded from the City-wide neighborhood project account shall be approved by the Commission in a manner, to be determined by the Commission, which emphasizes placement of artworks in public places and infrastructure decorations in wards with significantly fewer artworks in public places and infrastructure decorations than the ward-by-ward average.

F. The Commission shall establish a Standing Review Committee to review proposed gifts or long-term loans of artworks to the City. The Standing Review Committee shall report its recommendation within 60 days after reference to it of any proposal for such a gift or long-term loan. Such report shall be made to the City department with authority to accept or receive such gift or loan. No such gift or loan shall be accepted for the City without the favorable recommendation of the Standing Review Committee. (1994 C., § 5.90.100; Ord. No. 68793, § 10, 11-18-2010.)

Chapter 5.92

BIG BROTHERS BIG SISTERS OF EASTERN MISSOURI FUND

Sections:

5.92.010	**The BackStoppers, Inc. Fund and The Big Brothers Big Sisters of Eastern Missouri Fund established.**
5.92.020	**Excess payment disposition.**
5.92.030	**Deposit.**
5.92.040	**Use of funds.**

5.92.010 The BackStoppers, Inc. Fund and The Big Brothers Big Sisters of Eastern Missouri Fund established.

The Comptroller is authorized and directed to establish a fund to be designated as "The BackStoppers, Inc. Fund" to help provide needed support and financial assistance to the spouses and children of all local and county police officers, firefighters, publicly-funded paramedics and EMTs and volunteer fire protection units, who have lost their lives performing their duty.

The Comptroller is authorized and directed to establish a fund to be designated as "The Big Brothers Big Sisters of Eastern Missouri Fund" to help provide needed support and financial assistance to Big Brothers Big Sisters of Eastern Missouri to help provide a mentor for every child who wants and needs one. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this chapter. All expenditures from such fund shall be appropriated in accordance with applicable law. (1994 C., § 5.92.010; Ord. No. 68846, § 1, 2-8-2011.)

5.92.020 Excess payment disposition.

When any person, firm or corporation participating in "The BackStoppers, Inc. Fund" or "The Big Brothers Big Sisters of Eastern Missouri Fund" program pays an amount in excess of the amount due on any water bill, personal property or real estate tax bill the Collector of Revenue shall remit to the Comptroller the excess amount on a monthly basis. (1994 C., § 5.92.020; Ord. No. 68846, § 2, 2-8-2011.)

5.92.030 Deposit.

The Comptroller, upon receipt of such excess payments designated for the "The BackStoppers, Inc. Fund" program remitted by the Collector, shall place said receipted payments in the "The BackStoppers, Inc. Fund" established in Section 5.92.010. The Comptroller, upon receipt of such excess payments designated for the "The Big Brothers Big Sisters of Eastern Missouri Fund" program remitted by the Collector, shall place said receipted payments in the "The Big Brothers Big Sisters of Eastern Missouri Fund" established in Section 5.92.010. (1994 C., § 5.92.030; Ord. No. 68846, § 3, 2-8-2011.)

5.92.040 Use of funds.

Funds maintained in "The BackStoppers, Inc. Fund" account shall only be used for purposes relating to the mission of The BackStoppers, Inc.

The BackStoppers, Inc. shall provide annually to all members of the Board of Aldermen a report detailing the use of funds provided by the "The BackStoppers, Inc. Fund."

Funds maintained in "The Big Brothers Big Sisters of Eastern Missouri Fund" account shall only be used for purposes relating to the mission of Big Brothers Big Sisters of Eastern Missouri.

Big Brothers Big Sisters of Eastern Missouri shall provide annually to all members of the Board of Aldermen a report detailing the use of funds provided by the "The Big Brothers Big Sisters of Eastern Missouri Fund." (1994 C., § 5.92.040; Ord. No. 68846, § 4, 2-8-2011.)

Chapter 5.95

PET SPAY, NEUTER AND MICROCHIP ASSISTANCE FUND

Sections:

5.95.010 Established.
5.95.020 Excess payment disposition.
5.95.030 Deposit.
5.95.040 Use of funds.

5.95.010 Established.

The Comptroller is authorized and directed to establish a fund to be designated as the "Pet Spay, Neuter and Microchip Assistance Fund" for the purpose of offering financial assistance to qualified St. Louis City residents for the spaying or neutering and microchipping for identification of their dogs and cats to control pet overpopulation in the City of St. Louis. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this chapter. All expenditures from such fund shall be appropriated in accordance with applicable law. (1994 C., § 5.95.010; Ord. No. 69043, § 4, 12-12-2011.)

5.95.020 Excess payment disposition.

When any person, firm or corporation participating in the "Pet Spay, Neuter and Microchip Assistance Fund" program pays an amount in excess of the amount due on any water bill, personal property or real estate tax bill the Collector of Revenue shall remit to the Comptroller the excess amount on a monthly basis. (1994 C., § 5.95.020; Ord. No. 69043, § 5, 12-12-2011.)

5.95.030 Deposit.

The Comptroller, upon receipt of such excess payments designated for the "Pet Spay, Neuter and Microchip Assistance Fund" program remitted by the Collector, shall place said receipted payments in the Neuter Assistance and Education Fund, as codified in Section 10.04.165 of the Revised Code of the City of St. Louis. (1994 C., § 5.95.030; Ord. No. 69043, § 6, 12-12-2011.)

5.95.040 Use of funds.

Funds maintained in "Pet Spay, Neuter and Microchip Assistance Fund" account shall only be used for the purpose of offering financial assistance to qualified St. Louis City residents for the spaying or neutering and micro-chipping for identification of their dogs and cats. The Commissioner of Health shall provide annually to all members of the Board of Aldermen a report detailing the use of funds provided by the "Pet Spay, Neuter and Microchip Assistance Fund." (1994 C., § 5.95.040; Ord. No. 69043, § 7, 12-12-2011.)

Chapter 5.98

FUND 1116 METRO TRASH SERVICES FUND

Sections:

5.98.010 Special fund created.

5.98.010 Special fund created.

There is hereby appropriated and set apart into a new special Fund 1116 Metro Trash Services Fund from payments to be received from the Bi-State Development Agency (operating as "Metro") Two Hundred Fifty Thousand Dollars ($250,000.00) for the purchase of new trash receptacles by the City's Refuse Division to be placed at MetroBus stops within the City and sixty six thousand six hundred dollars ($66,600.00) as the pro-rated annual cost of Refuse Division trash removal services for the remainder of the current fiscal year as specified in a Memorandum of Agreement between the City and Metro and detailed in Exhibit A to Ordinance No. 68784. Representatives from Metro shall appear before the Transportation and Commerce Committee of the St. Louis Board of Aldermen every six (6) months and provide updates to said Committee. (1994 C., § 5.95.010; Ord. No. 68784, § 1, 11-8-2010.)

Chapter 5.100

THE REPARATIONS FUND AND THE MIDWEST LAND DEVELOPMENT FUND

Sections:

5.100.010 The Reparations Fund and The Midwest Land Development Fund established.

5.100.020 Excess payment disposition.

5.100.030 Deposit in The Reparations Fund and The Midwest Land Development Fund.

5.100.040 Use of funds.

5.100.010 The Reparations Fund and The Midwest Land Development Fund established.

The Comptroller is authorized and directed to establish a fund to be designated as "The Reparations Fund" to help provide needed support and financial assistance to the spouses and children of all African American local residents as of the effective date of this chapter, and establish "The Midwest Land Development fund" to help provide additional dollars for economic development at approved local city blocks. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this chapter. All expenditures from such fund shall be appropriated in accordance with applicable law.
(Ord. No. 71491, § 1, 3-30-2022.)

5.100.020 Excess payment disposition.

When any person, firm or corporation participating in "The Reparations Fund" or "The Midwest Land Development Fund" program pays an amount in excess of the amount due on any water bill, personal property or real estate tax bill the Collector of Revenue shall remit to the Comptroller the excess amount on a monthly basis.
(Ord. No. 71491, § 2, 3-30-2022.)

5.100.030 Deposit in The Reparations Fund and The Midwest Land Development Fund.

The Comptroller, upon receipt of such excess payments designated for the "The Reparations Fund" program remitted by the collector, shall place said receipted payments in the "The Reparations Fund" established in 5.100.010. The Comptroller, upon receipt of such excess payments designated for the "The Midwest Land Development Fund" program remitted by the collector, shall place said receipted payments in the "The Midwest Land Development Fund" established in Section 5.100.010.
(Ord. No. 71491, § 3, 3-30-2022.)

5.100.040 Use of funds.

Funds maintained in "The Reparations Fund" account shall only be used for purposes relating to the mission of The Reparations Fund.

A report detailing the use of funds provided by the "Comptroller" shall be provided annually to all mem-

bers of the Board of Aldermen Funds maintained in "The Midwest Land Development Fund" account shall only be used for purposes relating to the mission of economic development in approved local locations.

The Comptroller shall provide annually to all members of the Board of Aldermen a report detailing the use of funds.
(Ord. No. 71491, § 4, 3-30-2022.)

Chapter 5.102

DOMESTIC VIOLENCE PREVENTION AND FAMILY SUPPORT FUND

Sections:

5.102.010	**The Domestic Violence Prevention and Family Support Fund established.**
5.102.020	**Change collection containers installed.**
5.102.030	**Appearance and accessibility.**
5.102.040	**Disposition of change collected.**
5.102.050	**Deposit in The Domestic Violence Prevention and Family Support Fund.**
5.102.060	**Use of funds.**
5.102.070	**Temporary program suspension.**

5.102.010 The Domestic Violence Prevention and Family Support Fund established.

The Comptroller is authorized and directed to establish a fund to be designated as The Domestic Violence Prevention and Family Support Fund (the "Fund") to be used to provide financial assistance for efforts aimed at the prevention of domestic violence and for the provision of support services for individuals who reside in the City of St. Louis and who are victims or otherwise have suffered the impacts of domestic violence and abuse, bullying, childhood abuse and sexual assault, and to provide education aimed at the prevention of such offenses. All interest earned by the Fund shall be retained in the Fund to be appropriated according to provisions of this chapter and in accordance with all applicable laws.
(Ord. No. 70746, § 1, 3-28-2018.)

5.102.020 Change collection containers installed.

The Board of Aldermen hereby authorizes and directs the Director of Airports or his/her designee to fully implement a program for installing passive change collection containers as close to Transportation Security Administration screening points located within the Lambert-St. Louis International Airport (the "Airport") as may be allowed by or as may be deemed prudent by the Transportation Security Administration, and in areas adjacent to, but not within, Transportation Security Administration leased premises located within the Airport, and at other locations within the Airport, as may be agreed to by the Transportation Safety Administration, for the purpose of collecting charitable donations for the purposes described in this chapter.
(Ord. No. 70746, § 2, 3-28-2018.)

5.102.030 Appearance and accessibility.

Passive change collection containers should be readily visible and accessible to passengers as they approach security checkpoints and shall be clearly marked to indicate that it is an initiative of the St. Louis Board of Alderman and its purpose including a description of The Domestic Violence Prevention and Family Support Fund and its uses.
(Ord. No. 70746, § 3, 3-28-2018.)

5.102.040 Disposition of change collected.

The Airport Director shall direct a member of the Airport Police Department and a member of the Accounting division to collect the change from the change collection containers on a biweekly basis all monies collected in the passive change collection containers located within the Airport are to be remitted to the Comptroller. On a bi-annual basis, the Comptroller shall remit funds to the St. Louis Family Violence Council, a Missouri 501(c)(3) charitable corporation, for distribution of funds. The St. Louis Family Violence Council consists of more than twenty-five (25) organizations in the St. Louis-area that are committed to significantly reducing the incidences of family violence in St. Louis through discussion, education, advocacy, intervention, systemic change, and coordination of community resources. Members of the St. Louis Family Violence Council include the St. Louis Metropolitan Police Department Domestic Abuse Response Team; the Twenty-Second Judicial Circuit Family Court; St. Louis Circuit Attorney's Victim Services Office; Crime Victim Advocacy Center and more. In the event the St. Louis Family Violence Council can no longer

manage the funds, a committee shall be formed for a "request for proposal" pursuant to city ordinances to determine the distribution of funds.
(Ord. No. 70746, § 4, 3-28-2018.)

5.102.050 Deposit in The Domestic Violence Prevention and Family Support Fund.

The Comptroller, upon receipt of those monies remitted by the Director of Airports for the Fund shall be deposited in "The Domestic Violence Prevention and Family Support Fund" established in Section 5.102.010.
(Ord. No. 70746, § 5, 3-28-2018.)

5.102.060 Use of funds.

The monies in the Fund shall only be used to support efforts aimed at the prevention of domestic violence and for the provision of support services of individuals who reside in the City of St. Louis and who are victims of or have otherwise suffered the impacts of domestic violence and abuse, bullying, childhood abuse and sexual assault, and to provide education aimed at the prevention of such offenses. Monies from the Fund may also be used to cover the costs incurred with the maintenance of the passive change collection containers and the collection of donations and their remittance to the Comptroller as well as other costs that may be directly incurred in carrying on the donation collection efforts described in this chapter. Monies from the Fund shall be distributed by the St. Louis Family Violence Council in accordance with those guidelines and conditions that are approved by the Public Safety Committee of the Board of Aldermen, and future revisions to said guidelines and conditions, which shall be subject to the approval of the Public Safety Committee. A report shall be submitted to the Public Safety Committee by July 1 of each year highlighting the previous year use of funds with the first report beginning July 1, 2019.
(Ord. No. 70746, § 6, 3-28-2018.)

5.102.070 Temporary program suspension.

The Airport Director may temporarily suspend the donation collections or remove passive change collection containers, if in the Airport Director's reasonable determination that it is in the best interests of the City, the Airport, or the traveling public to temporarily suspend the change collection program or remove change collection containers, as may be necessary, due to construction or security issues.
(Ord. No. 70746, § 7, 3-28-2018.)

Chapter 5.104

PROPERTY TAX CREDIT FOR ELIGIBLE SENIOR TAXPAYERS

Sections:

5.104.010 Purpose.
5.104.020 Definitions.
5.104.030 Program implementation.
5.104.040 Homestead eligibility.
5.104.050 Taxation of new construction.
5.104.060 Revenue distribution to be reduced by credit.

5.104.010 Purpose.

The purpose of this chapter is to establish the City of St. Louis' Senior Citizen Property Tax Freeze Credit Program.
(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 1, 12-18-2023.)

5.104.020 Definitions.

For the purpose of this chapter, the following terms shall have the following definitions:

1. *Actually occupied* shall mean the eligible taxpayer physically occupies the primary residence and uses the primary residence as their personal dwelling. A primary residence is not considered "actually occupied" by an eligible taxpayer if it is possessed or used by an eligible taxpayer for investment or commercial purposes, whether in part or in whole.

2. *Investment or commercial purposes* shall mean for the purpose of generating a financial return on the primary residence through rental income, or for the purpose of generating a financial return on the primary residence through capital appreciation from a future resale occurring two (2) years or less from the time the property was purchased by the eligible taxpayer.

3. *Eligible credit amount* shall mean the difference between an eligible taxpayer's real property tax liability on such taxpayer's homestead for a given tax year, minus the real property tax liability on such homestead in the eligible taxpayer's initial credit year.

4. *Reserved.*

5. *Eligible taxpayer* shall mean a resident of the City of St. Louis who:

a. Is sixty-two (62) years of age or older;

b. Is an owner of record of a homestead or has a legal or equitable interest in such property as evidenced by a written instrument; and

c. Is liable for the payment of real property taxes on such homestead.

6. *Initial credit year* shall mean:

a. In the case of a taxpayer that meets all requirements of Subsection 5 of this section prior to the year in which a credit is authorized pursuant to Section 5.104.030 of this chapter, the year in which such credit is authorized; and

b. For all other taxpayers, the year in which the taxpayer meets all requirements of Subsection 5 of this section.

c. If in any tax year subsequent to the eligible taxpayer's initial credit year the eligible taxpayer's real property tax liability is lower than such liability in the initial credit year, such tax year shall be considered the eligible taxpayer's initial credit year for all subsequent tax years.

7. *Homestead* shall mean real property located in the City of St. Louis that is actually occupied by an eligible taxpayer as the eligible taxpayer's primary residence. An eligible taxpayer shall not claim more than one (1) primary residence.

8. *Primary residence* shall mean a homestead in which the eligible taxpayer physically occupies, uses as their personal dwelling for a majority of the year, and uses as their legal address for any two (2) of the below:

a. Tax returns;

b. United States Postal Service Mail service;

c. Missouri Driver's license; or

d. Missouri voter registration.

(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 2, 12-18-2023.)

5.104.030 Program implementation.

1. The City of St. Louis Assessor's Office and Collector of Revenue's Office shall make available the property tax credit program provided for under this chapter beginning in the 2024 calendar year.

2. No taxpayer shall be considered "eligible" for purposes of calculating, implementing or utilizing the tax credit that applies to any point in time prior to the 2023 tax year.

3. Nothing in this chapter shall be construed to authorize or require the issuance of any refunds of taxes already paid prior to the effective date of RSMo 137.150, or its successor.

4. Nothing in this chapter shall be construed to relieve the taxpayer of the obligation to pay the tax liability of the State Blind Pension Fund or dedicated ad valorem taxes levied for the payment of bonded indebtedness.

5. An eligible taxpayer may only receive one (1) tax credit authorized by this chapter per each tax year, beginning with the 2023 tax year. No household shall receive more than one (1) tax credit authorized by this chapter per tax year. Only one (1) tax credit authorized under this chapter shall be applied to the property tax owed on a homestead each year. An eligible taxpayer may not carry unused tax credits authorized under this chapter forward to future tax years.

6. Any tax credit granted by the City of St. Louis pursuant to this chapter shall be applied when calculating the eligible taxpayer's property tax liability for the tax year, beginning with the taxpayer's initial credit year. The amount of said tax credit shall be noted on the statement of tax due sent to the eligible taxpayer by the City of St. Louis Collector of Revenue.

7. To receive a credit under this chapter, an eligible taxpayer must apply to the City of St. Louis Assessor's Office for the credit authorized under this chapter on or before June 30 of each calendar year, and shall submit forms created by and documentation requested by the City of St. Louis Assessor's Office that demonstrates their status as an eligible taxpayer and their eligible homestead, as provided under this chapter. Such documentation shall include but not be limited to the following:

a. Reserved.

b. Proof of age may be demonstrated by:

i. A valid state-issued driver license or state ID;

ii. A certified copy of birth certificate;

iii. A passport;

iv. A military service record or certified copy;

v. A naturalization record or immigration certificate, if it shows the taxpayer's age or date of birth;

vi. A life insurance policy that is at least five (5) years old and shows the taxpayer's age or date of birth;

vii. The taxpayer's child's birth certificate on which the applicant's age is shown;

viii. A marriage record or certified copy, if it shows a taxpayer's age or date of birth; or

ix. An employment record at least five (5) years old showing a taxpayer's birth date.

c. An eligible homestead may be demonstrated through:

i. A copy of an eligible taxpayer's paid real estate tax receipt on the property from the prior tax year; and

ii. A deed or a mortgage on which the eligible taxpayer's name appears.

d. Status of the eligible homestead as an eligible taxpayer's primary residence may be demonstrated by the address of the homestead appearing on any two (2) of the below belonging to the eligible taxpayer:

i. Tax returns;

ii. United States Postal Service Mail service;

iii. Missouri Driver's license; or

iv. Missouri voter registration.

8. An eligible taxpayer shall not receive a credit under this chapter if they claim more than one (1) primary residence for the purposes of receiving a credit authorized by RSMo 137.1050, or its successor, whether such residences are located within or outside of the City of St. Louis.

(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 3, 12-18-2023.)

5.104.040 Homestead eligibility.

For tax year 2024, the eligible taxpayer shall demonstrate a total appraised market value of the property, as determined by the most recent City assessment, of not more than five hundred thousand dollars ($500,000.00). No homestead shall be eligible to benefit from or receive any credit under this chapter if it has a total appraised market value, as determined by the most recent City assessment, of five hundred thousand dollars ($500,000.00) or more.

For subsequent tax years, the total appraised market value of the property eligible taxpayers shall demonstrate shall increase automatically from the amount required for the 2024 tax year by the annual change in Consumer Price Index for All Urban Consumers, as certified by the Missouri Tax Commission pursuant to RSMo 137.073.4(1). In the event the Consumer Price Index for All Urban Consumers for the preceding calendar year is not a positive number, the amount of total appraised market value of the property eligible taxpayers shall be required to demonstrate shall remain the same as the preceding tax year and shall not be decreased.

No homestead receiving tax abatement or tax increment financing from the City of St. Louis shall be eligible to benefit from or receive the credit authorized under this chapter. No homestead which is delinquent on taxes, interest, or penalties owed to the City of St. Louis shall be eligible to benefit from or receive the credit authorized under this chapter.

(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 4, 12-18-2023.)

5.104.050 Taxation of new construction.

If an eligible taxpayer makes new construction and improvements to such eligible taxpayer's homestead, the real property tax liability for the taxpayer's initial credit year shall be increased to reflect the real property tax liability attributable to such new construction and improvements.

(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 5, 12-18-2023.)

5.104.060 Revenue distribution to be reduced by credit.

The monetary amount of any credits applied to the real property taxes of eligible taxpayers pursuant to this chapter shall only reduce the monetary amount of real property tax revenue distributed by the City of St. Louis to the City of St. Louis. In no instance shall the monetary amount of any credits applied to the real property taxes of eligible taxpayers pursuant to this chapter reduce the monetary amount of real property tax revenue distributed by the City of St. Louis to any of the following local taxing authorities:

1. The St. Louis Public Schools Board;

2. The Community College District of St. Louis;

3. The St. Louis City Library;

4. The Metropolitan Zoological Park and Museum District (a.k.a. Zoo Museum District or ZMD), including its five (5) subdistricts:

a. The Art Museum Subdistrict (a.k.a. Saint Louis Art Museum);

b. The Botanical Garden Subdistrict (a.k.a. Missouri Botanical Garden);

c. The Museum of Missouri History Subdistrict (a.k.a. Missouri History Museum or Missouri Historical Society);

d. The Museum of Natural History Subdistrict (a.k.a. Saint Louis Science Center); and

e. The Zoological Park Subdistrict (a.k.a. Saint Louis Zoo);

5. The Sewer District;

6. The Developmental Disability Resource Board (a.k.a. St. Louis Office for Developmental Disability Resources);

7. The Community Mental Health Fund and Community Children's Services Fund (a.k.a. St. Louis Mental Health Board or City of St. Louis Mental Health Board of Trustees);

8. The City of St. Louis Senior Citizens Services Fund;

9. Community Improvement Districts located within the City of St. Louis; or

10. Special Business Districts located within the City of St. Louis.

(Ord. No. 71916, § 1, 11-15-2024; Ord. No. 71758, § 6, 12-18-2023.)

Title 6

CONTRACTS FOR PUBLIC WORKS

Charter:

Art. XXII Public works and improvements.

Art. I § 1(4) Authority of city to contract.

Chapters:

6.04 Procedures and Terms

6.08 Emergency Work

6.12 Defective Work Complaints

6.16 Public Works Contract

6.17 Certification of Non-Debarment

6.20 Service Contracts

Chapter 6.04

PROCEDURES AND TERMS

City Counselor Ops.: 10118, 10304

Sections:

6.04.010 Contracts.

6.04.020 Bids—Generally.

6.04.030 Deposit—Amount.

6.04.040 Deposit—Conditioned—Time extension.

6.04.050 Bids—Opening.

6.04.060 Deposit—Disposition.

6.04.070 Bids—Rejection.

6.04.080 Awarding contracts.

6.04.090 Sureties and bonds.

6.04.100 Bond—Conditions.

6.04.110 Deposit—Forfeiture—New bids.

6.04.120 Bids—Additional information.

6.04.130 Penalty for violation of Section 6.04.120.

6.04.140 Official number.

6.04.150 City contracts to provide eight-hour day.

6.04.160 Sunday clause.

6.04.170 Suspension clause.

6.04.180 Special tax work deposit—Use.

6.04.190 Special tax work deposit—Additional.

6.04.200 Special tax work deposit—Return.

6.04.210 Contracts for grading and repairs.

6.04.220 Annual emergency contracts for sewers.

6.04.230 Engineering and inspection costs special fund.

6.04.010 Contracts.

Every contract entered into by the Board of Public Service shall be signed by the President of the Board in the name of the City, and shall then be submitted to the City Counselor for the approval of the form thereof. After such approval has been received the contract shall be submitted to the Board of Public Service for its approval, which, when given, shall be endorsed thereon. It shall then be recorded in the office of the President of the Board of Public Service and also of the department or division having charge of the work. The original, after being countersigned by the Comptroller, shall be deposited in the Register's Office, a duplicate shall be given to the contractor, and copies thereof shall be furnished to the Comptroller. (1948 C., Ch. 16, § 14; 1960 C., § 100.140; 1994 C., § 6.04.010.)

Charter:

Art. I § 1(4) Authority of City to contract.

Art. IV § 25 Expenditures, improvements and repairs by ordinance only.

Art. IV § 26 Limitation on powers of Board of Aldermen, no contracts by Board of Aldermen.

Art. X § 2 Approval of form of contracts by City Counselor.

Art. XIII § 8 Appointment of specialists or experts.

Art. XIII § 9 President of Board of Public Service charge of contracts.

Art. XXII § 1 Ordinance for public works to be prepared by Board of Public Service with estimate of cost endorsed thereon.

Art. XXII § 2 Ordinance shall authorize particular work; contain specific appropriations.

Art. XXII § 4 How contract to be let, competitive bidding.

Art. XXII § 5 Contract expressly subject to charter and payments limited to amount of particular appropriation.

Art. XXV § 9 Contracts to be countersigned by comptroller and filed with Register.

RSMo:

RSMo 8.250 (2016) Competitive bidding required.

RSMo 70.220 (2016) Contracts with agencies of state, federal government, and other municipal corporations.

RSMo 70.230 (2016) Procedure, ordinance required.

RSMo 71.140 (2016) Missouri products preference.

RSMo 432.070 (2016) Contracts, execution of by counties, towns—form of contract.

Cases:

Contract must be expressly authorized by legislative body in reasonably definite and particularized detail. *State v. City of Sullivan,* 520 S.W. 2d 186.

After execution of contract let on competitive bids, city officers are executive and not contracting officers and may not modify written contract. *United Construction Company v. City of St. Louis,* 69 S.W.2d 639.

RSMo 432.070 Applicable to City of St. Louis. *West Virginia Coal Co. v. City of St. Louis,* 25 S.W. 2d 466.

6.04.020 Bids—Generally.

Each bid for work shall be made upon a blank form, to be furnished by the Board of Public Service, and shall be placed in a sealed envelope addressed to the "President of the Board of Public Service," indorsed "proposals for public work," and with the number for the letting for which the bid is made. Each bid shall be signed by the bidder, or by an authorizing officer or agent, where the bid is by a corporation or firm. The bid shall not be opened before the day and hour fixed in the notice. (1948 C., Ch. 16, § 4; 1960 C., § 100.040; 1994 C., § 6.04.020.)

For opening bids, see § 6.04.050.

Charter:

Art. XXII § 4 How contracts to be let.

RSMo:

RSMo 8.250 (2016) Advertising procedure for bids.

City Counselor Ops.: 8868, 9618, 9788, 10445.

6.04.030 Deposit—Amount.

The amount of the deposit shall be equal to ten percent (10%) of the total cost of the work as estimated by the Board of Public Service if the estimated cost is three thousand dollars ($3,000.00) or less. If the estimated cost is more than three thousand dollars ($3,000.00), the deposit shall be ten percent (10%) on three thousand dollars ($3,000.00) and two and one-half percent (2.5%) on the excess above three thousand dollars ($3,000.00). No deposit shall be less than fifty dollars ($50.00). (1948 C., Ch. 16, § 6; 1960 C., § 100.060; 1994 C., § 6.04.030.)

6.04.040 Deposit—Conditioned—Time extension.

The deposit shall be conditioned that the successful bidder shall enter into a written contract to do the work bid for according to the terms of this bid, and shall furnish approved security within five days after the award has been made and the bidder notified thereof. An extension of time for furnishing security may be granted by a majority vote of the Board of Public Service, not to exceed fifteen days. (1948 C., Ch. 16, § 7; 1960 C., § 100.070; 1994 C., § 6.04.040.)

City Counselor Ops.: 9792

6.04.050 Bids—Opening.

The bids shall be opened and read on the day and at the place indicated in the advertisement by the President of the Board of Public Service, at or about the hour of twelve, noon, in the presence of the Board and of bidders as desired to be present. (1948 C., Ch. 16, § 10; 1960 C., § 100.100; 1994 C., § 6.04.050.)

City Counselor Ops.: 9160

6.04.060 Deposit—Disposition.

As soon as a contract for public work has been awarded, the President of the Board of Public Service shall return to each unsuccessful bidder the certified check accompanying his bid as the amount of deposit. The certified check of the successful bidder shall be forwarded by the President of the Board to the City Treasurer as the deposit of the successful bidder, and the amount thereof shall be retained by the Treasurer until the contract shall have been entered into and bond approved by the Board of Public Service. Until such disposition is made of the certified checks accompanying bids, the same shall remain in the custody of the President of the Board of Public Service. (1948 C., Ch. 16, § 9; 1960 C., § 100.090; 1994 C., § 6.04.060.)

City Counselor Ops.: 9841, 10131

6.04.070 Bids—Rejection.

If any bids blanks are not properly filled up to make a bid complete and without any ambiguity as to its intended meaning, or if it be not properly signed, or if the certified check has not been enclosed with the bid as provided in this chapter, then the bid shall be rejected. (1948 C. Ch. 16, § 11; 1960 C., § 100.110; 1994 C., § 6.04.070.)

City Counselor Ops.: 8025, 8351, 9046, 9133, 9213, 9615, 9831, 10447

6.04.080 Awarding contracts.

As soon as the canvass of the several bids shall have been completed, the contract shall be awarded to the lowest responsible bidder. No person shall be a responsible bidder who has failed or refused fully to

carry out any prior contract let to him for doing any work contemplated by the Charter. The Board of Public Service shall have full power and authority to reject all bids advertised for and submitted whenever, in its judgment, the interests of the City may require, and in such event shall in like manner readvertise for bids for the work. (1948 C., Ch. 16, § 12; 1960 C., § 100. 120; 1994 C., § 6.04.080.)

City Counselor Ops.: 8596, 8916, 9296, 9618, 9788, 9841

6.04.090 Sureties and bonds.

The performance of all contracts made by the Board of Public Service shall be secured by at least two sufficient and approved sureties, or a corporation engaged in the bonding business and authorized under the laws of Missouri to do business in this state, giving bond to the City in amounts, as follows:

When the estimated amount of the contract is five thousand dollars or less, the bond shall be for the full amount of the contract, and when the estimated amount of the contract is over five thousand dollars, the bond shall be for five thousand dollars and twenty-five percent of the amount of the estimate in excess of five thousand dollars. No surety on any bond shall be taken unless he shall pay taxes on property equal in the amount to his liability on all bonds on which he may be surety to the City. (1948 C., Ch. 16, § 5; 1960 C., § 100.050; 1994 C., § 6.04.090.)

RSMo:

RSMo 107.170 (2016) Performance bond mandatory; payment terms and conditions required

Charter:

Art. XXII § 4 Performance bond required

6.04.100 Bond—Conditions.

The bond required by Section 6.04.090 shall be conditioned that the principal therein will faithfully and properly perform the contract according to all the terms thereof, and that he will as soon as the work contemplated by the contract shall have been completed, pay to the proper parties all amounts due for material and labor used and employed in the performance thereof. The bond may be sued on at the instance of any material man, laboring man or mechanic, in the name of the City, to the use of such material man, laboring man or mechanic, for any breach of the condition of the bond. No suit shall be instituted after the expiration of ninety days from the completion of the contract. (1948 C., Ch. 16, § 13; 1960 C., § 100.130; 1994 C., § 6.04.100.)

City Counselor Ops.: 9644

Cases:

Performance bond provision requiring suits based thereon to be instituted prior to ninety days after completion of contract did not conflict with state statute. *City of St. Louis ex rel. Atlas Plumbing Supply Co. v. Aetna Casualty and Surety Co.,* 444 S.W. 2d 513 (1969).

6.04.110 Deposit—Forfeiture—New bids.

If any bidder to whom a contract shall have been awarded shall fail to enter into a contract and to furnish approved security within the time specified, his deposit shall be forfeited to the City, and the Board of Public Service shall advertise for new bids. (1948 C., Ch. 16, § 8; 1960 C., § 100.080; 1994 C., § 6.04.110.)

City Counselor Ops.: 9792

6.04.120 Bids—Additional information.

In addition to the other requirements regarding the contents of the bid for public works, the following information shall be attached and enclosed with the bid, on a separate page, signed, under oath, by the bidder, or by an authorized officer or agent, when the bid is by a corporation or firm:

The name and address of any partner, employee, officer, director, or person possessing more than five percent of the ownership of the bidding business, firm, association, partnership, or corporation, who has, at the time of the submitting of the bid, any contractual relationships or holds any office or employment with the City, and the day on which that person entered that relationship, office or employment, is expected to terminate. (1960 C., § 100.041; 1994 C., § 6.04.120; Ord. No. 56853, § 1(part), 1974.)

6.04.130 Penalty for violation of Section 6.04.120.

Any person, firm or corporation who fails to comply with the provisions of Section 6.04.120 shall not be eligible to be selected by the City for award of a contract pursuant to the bid with which the information required by Section 6.04.120 was not supplied. Any person, firm, or corporation who willfully supplies false information required by Section 6.04.120 to the City shall, upon conviction, be fined not less than two hundred fifty dollars, nor more than the sum of five hundred dollars or by imprisonment of not more than

ninety days, or both fine and imprisonment. (1960 C., § 100.042; 1994 C., § 6.04.130; Ord. No. 56853, § 1(part), 1974.)

6.04.140 Official number.

Each letting of work by the Board of Public Service, when advertised, shall be designated by a number, and shall be officially known by such number. (1948 C., Ch. 16, § 3; 1960 C., § 100.030; 1994 C., § 6.04.140.)

6.04.150 City contracts to provide eight-hour day.

All contracts hereafter entered into wherein the City is a party for the doing of any kind of work or labor for the City, including work on all public buildings, works and enterprises, shall contain the following terms and conditions:

A. The men, persons, or laborers who may be employed in the doing, prosecuting, or accomplishment of work done by the contractor in the City, or any one under him, or any person controlling the men, persons, or laborers, shall not be required to work more than eight hours a day;

B. In case of the violation of the provision of the contracts, the Mayor shall immediately declare the contracts cancelled and forfeited, and the work being done under the contracts shall be relet in the manner provided for the letting of the work, and the contractor shall thereafter be ineligible to bid upon the work under such reletting, and the difference in the cost of doing the work under the contract so cancelled and forfeited, and under the reletting, shall be sued for on the bond of the contractor so violating the contract. No contract shall be declared cancelled and forfeited for requiring or permitting any person or laborer to work more than eight hours in any one day in violation of this section if the President of the Board of Public Service shall certify that the violation was unavoidable, or was necessary for the proper prosecution of the work. (1948 C., Ch. 47, § 8; 1960 C., § 100.210; 1994 C., § 6.04.150; Ord. No. 45115, § 1, 1949.)

McQuillin:

29.45 Labor restrictions

6.04.160 Sunday clause.

Every contract for public work shall contain a clause to the effect that no work or labor shall be done thereunder on Sunday, except in matters of emergency or urgent necessity arising in connection with the public work, and the officer in charge of the department in or for which the public work is being done shall determine whether the emergency or necessity exists. (1948 C., Ch. 16, § 2; 1960 C., § 100.020; 1994 C., § 6.04.160.)

City Counselor Ops.: 9868

6.04.170 Suspension clause.

Every contract for public work shall contain a clause to the effect that on ten days' notice the work under the contract may, without cost to or claim against the City, be suspended by the Board of Public Service, with the approval of the Mayor, for want of means or other substantial cause. (1948 C., Ch. 16, § 1; 1960 C., § 100.010; 1994 C., § 6.04.170.)

6.04.180 Special tax work deposit—Use.

Before a contract awarded by the Board of Public Service for any work which is to be paid for by a special tax is executed, the bidder, to whom the award was made, shall be required to pay into the City Treasury, the sum of two hundred dollars, regardless of the number of such contracts which may have been awarded to him, as a special fund to be used by the department or division under whose charge the work is to be done to defray the expenses of necessary repairs on the work, removal of unnecessary obstructions left by the contractor along the line of the work where an excavation has been made, if the contractor shall be liable under his contract and which repairs, removal of unnecessary obstructions or restoration of the surface of the ground the department or division shall order made by reason of a failure of the contractor to make repairs, remove obstructions or restore the surface of the ground himself within the time specified by the department or division. (1948 C., Ch. 16, § 15; 1960 C., § 100.150; 1994 C., § 6.04.180.)

6.04.190 Special tax work deposit—Additional.

Whenever the whole or part of the two hundred dollars, required by Section 6.04.180, shall have been expended for the purpose described in Section 6.04.180, the President of the Board of Public Service shall notify the contractor to pay so much money into the Treasury as will bring the fund again up to two hundred dollars. Until the contractor shall have complied with such notice from the President of the Board, no new contracts for special tax work shall be awarded him nor shall any special tax bill be delivered to him. (1948 C., Ch. 16, § 16; 1960 C., § 100.160; 1994 C., § 6.04.190.)

6.04.200 Special tax work deposit—Return.

Whenever the contractor shall cease to be a contractor for special tax work, or to be responsible under any of his contracts for repairs on special tax work done by him, the President of the Board of Public Service shall certify this fact to the Comptroller, and, on presentation of such certificate, the Comptroller shall draw his warrant on the treasurer in favor of the contractor for the whole amount standing to the credit of the special fund created by the payment of the contractor, in accordance with the foregoing provisions, and shall take his receipt therefor, in full of all claims against the City on account of such payments. (1948 C., Ch. 16, § 17; 1960 C., § 100.170; 1994 C., § 6.04.200.)

6.04.210 Contracts for grading and repairs.

The Board of Public Service shall, in every year, enter into contract for one year, beginning on the first of July, for the grading, constructing, reconstructing and repairing of sidewalks and for the repairing of street and alley and gutter paving, and other similar work as may be ordered by ordinance, or which may become necessary to be done during the year. (1948 C., Ch. 16, § 18; 1960 C., § 100.180; 1994 C., § 6.04.210.)

6.04.220 Annual emergency contracts for sewers.

The Board of Public Service is authorized to let and enter into annual contracts from the first day of July of every year for emergency work required for the maintenance of sewers, sewer inlets, manholes and appurtenances, and for necessary repairs of sewers, sewer inlets, manholes and appurtenances requiring prompt attention. The emergency work and necessary repairs shall be done with stone, brick, concrete, cement, iron and other materials necessary for the proper performance of the work. (1948 C., Ch. 16, § 19; 1960 C., § 100.190; 1994 C., § 6.04.220.)

MSD Charter:

> Metropolitan St. Louis Sewer District (1954) Primary jurisdiction vested in District; Section 3.020(3), (7), construction, contract with municipalities.

6.04.230 Engineering and inspection costs special fund.

In order to provide for the proper application of all moneys collected from contractors for public work, to cover the costs incurred by the City for engineering and inspection services in connection with public work, where the addition of a charge for engineering and inspection services is provided for by ordinance, the Comptroller is authorized and directed to set up on the books of the City a special fund account to be known and designated as "engineering and inspection costs special fund," to which shall be credited all payments made on account of the engineering and inspection costs, to be withdrawn by the department of the President of the Board of Public Service, when approved by the Comptroller. (1948 C., Ch. 16, § 20; 1960 C., § 100.200; 1994 C., § 6.04.230.)

Chapter 6.08

EMERGENCY WORK

McQuillin:

> 29.38 Requirement for competitive bidding may be dispensed with in case of emergency where essential for health, safety or welfare that immediate action be taken

Charter:

> Art. XXII § 2 Emergency work and repairs requiring prompt attention may be done under supervision of Board of Public Service as provided by general ordinance

City Counselor Ops.: 8279, 8833, 10304

Sections:

6.08.010 Authority to enter into contracts.
6.08.020 Solicitation of bids—When required.
6.08.030 Approval by Comptroller required.
6.08.040 Procedure for cases involving emergency work.
6.08.050 Additional information.
6.08.060 Penalty for violation of Section 6.08.050.

6.08.010 Authority to enter into contracts.

The Department of the President, Board of Public Service is authorized to enter into contracts for work and repairs requiring prompt attention as determined by the provisions of this chapter and may purchase materials, employ labor, let contracts or otherwise provide for the execution of such work or repairs in a manner that will ensure its completion without delay. Such contracts shall be deemed emergencies in accordance with the provisions of Article XXII, Section 2 of the Charter of the City of St. Louis. (1948 C., Ch. 64, § 70; 1960 C., § 101.010; 1994 C., § 6.08.010; Ord. No. 64104, § 2(part), 1997; Ord. No. 56947, § 1(part), 1975.)

City Counselor Ops.: 7902

6.08.020 Solicitation of bids—When required.

Before the Board of Public Service shall take any action on any emergency work or repairs, it shall deter-

mine whether said work or repairs is required to correct a condition or situation which may result in the loss of life, limb or property; eliminates an environmental hazard; addresses a condition which requires immediate attention in order to avoid further damage to a facility or additional cost to the City; affords the City the opportunity to use its resources in the most effective and efficient manner; or prevents the disruption or hindrance of normal delivery of City services. With the exception of emergency contracts to correct a condition or situation which may result in the loss of life, limb or property or to eliminate an environmental hazard the Board of Public Service shall solicit a minimum of three competitive bids for the work or repairs of all contracts provided for in this chapter in such manner as will provide for effective and efficient action as outlined in Section 6.08.010. A record of above proceeding shall be kept in the same manner as other proceedings of the Board of Public Service. (1948 C., Ch. 64, § 71; 1960 C., § 101.020; 1994 C., § 6.08.020; Ord. No. 64104, § 2(part), 1997; Ord. No. 56947, § 1(part), 1975; Ord. No. 52871, § 1, 1964; Ord. No. 47550, § 1, 1995.)

City Counselor Ops.: 7902

6.08.030 Approval by Comptroller required.

All action by the Board of Public Service on emergency work or repairs requiring prompt attention as set out in this chapter, shall be first approved by the Comptroller in conformance with the provisions of Article XV, Section 2, of the Charter relating to emergencies, and all contracts shall be countersigned by the Comptroller in conformance with the provisions of Article XXV, Section 9, of the Charter. (1948 C., Ch. 64, § 72; 1960 C., § 101.030; 1994 C., § 6.08.030.; Ord. No. 64104, § 2(part), 1997; Ord. No. 56947, § 1(part), 1975; Ord. No. 52871, § 2, 1964; Ord. No. 47550, § 2, 1995.)

City Counselor Ops.: 7902

6.08.040 Procedure for cases involving emergency work.

Within a reasonable time after the approval of the ordinance codified in Sections 6.08.010 through 6.08.040, the Board of Public Service shall adopt and promulgate an order setting forth the procedure to be followed by its members and employees in cases involving emergency work and repairs requiring prompt attention as authorized by this chapter. (1948 C., Ch. 64, § 73; 1960 C., § 101.040; 1994 C., § 6.08.040; Ord. No. 64104, § 2(part), 1997; Ord. No. 56947, § 1(part), 1975.)

6.08.050 Additional information.

A. In addition to other information which may by rule of procedure be required to be furnished, no purchase of materials, employment of labor, letting of contracts, or otherwise providing for the execution of the work necessary for the prosecution of emergency work and repairs requiring prompt attention shall be agreed to until and unless the person, firm, association, partnership, or corporation who has been selected to supply materials, labor or otherwise provide for the execution of the work necessary for the prosecution of emergency work and repairs shall have filed for public record, in the office of the commissioner, director or officer who has authorized the said emergency work, a document, executed under oath by the owner, or authorized officer or agent, containing the following information:

The name and address of any partner, employee, officer, director, or person possessing more than five percent of the ownership of the bidding business, firm, association, partnership or corporation supplying materials, labor, or otherwise for the execution of the work necessary for the prosecution of emergency work and repairs who has, at the time of the agreement to supply materials, labor, or otherwise for the execution of the work necessary for the prosecution of emergency work and repairs, any contractual relationship or holds any office or employment with the City, and the date on which that person entered that relationship or office or employment, and the date on which that relationship, office or employment is expected to terminate.

B. All documents required to be filed by the provisions of this section shall contain information current within thirty days of the date on which the purchase of materials, employment of labor, letting of contracts, or otherwise providing for the execution of the work necessary for the prosecution of emergency work and repairs requiring prompt attention. (1960 C., § 101.050; 1994 C., § 6.08.050; Ord. No. 56852, § 1(part), 1974.)

6.08.060 Penalty for violation of Section 6.08.050.

Any person, firm or corporation who fails to comply with the provisions of Section 6.08.050 shall not be eligible to be selected by the City for award of a contract pursuant to the bid with which the information required by Section 6.08.050 was not supplied. Any person, firm, or corporation who willfully supplies false

information required by Section 6.08.050 to the City shall, upon conviction, be fined not less than two hundred fifty dollars, nor more than the sum of five hundred dollars or by imprisonment of not more than ninety days, or both such fine and imprisonment. (1960 C., § 101.055; 1994 C., § 6.08.060; Ord. No. 56852, § 1(part), 1974.)

Chapter 6.12

DEFECTIVE WORK COMPLAINTS

City Counselor Ops.: 9779, 10304

Sections:

6.12.010	**Right to complain—Examination—Decision.**
6.12.020	**Examination—Cost.**
6.12.030	**Complaint contents.**
6.12.040	**Cost estimate—Deposit required.**
6.12.050	**Consideration of complaint.**
6.12.060	**Notice of hearing.**
6.12.070	**Process for witnesses—Special deposit required.**
6.12.080	**Hearing—Testimony under oath.**
6.12.090	**Decision—Record.**
6.12.100	**Mayor to be given copy of decision.**

6.12.010 Right to complain—Examination—Decision.

Any citizen and taxpayer of the City may make complaint to the Board of Public Service that any public work is being done contrary to contract, or that the work or material used is imperfect or different from what was stipulated to be furnished or done. The Board shall receive and examine the complaint, and may appoint two or more members of the Board to examine and report on the work. After the examination, or after considering the report of the Commissioners so appointed, the Board shall make the order in the premises as shall be just and reasonable and in accordance with what the public interest seems to demand. The decision of the Board shall be binding on all parties. (1948 C., Ch. 16, § 21; 1960 C., § 103.010; 1994 C., § 6.12.010.)

Charter:

Art. III § 7: Complaints as to execution of contracts

6.12.020 Examination—Cost.

The entire cost of making the examination, under the provisions of Section 6.12.010, including the taking of testimony, when necessary, examining the work, testing the material and of replacing work disturbed in the examination shall be borne by the contractor if the complaint is decided to be well founded, or by the complainant if found to be groundless. (1948 C., Ch. 16, § 22; 1960 C., § 103.020; 1994 C., § 6.12.020.)

6.12.030 Complaint contents.

The complaint described in Section 6.12.010 shall be in writing, filed with the Secretary of the Board of Public Service, shall give the full name and residence and business address of the complainant, and shall specify the work complained of and general nature of the complaint and of the evidence to be offered. (1948 C., Ch. 16, § 23; 1960 C., § 103.030; 1994 C., § 6.12.030.)

6.12.040 Cost estimate—Deposit required.

Upon receipt of any complaint described in Section 6.12.010, the Board of Public Service shall make an estimate of the cost which would arise from consideration of the complaint, including that of replacing work injured by the examination and the taking of testimony when necessary. The complainant shall be required to deposit with the City Treasurer the sum so estimated, which sum shall be a special fund, out of which shall be paid, upon the certificate of the President of the Board, the cost incurred by consideration of the complaint and of replacing the work if the complaint shall be found groundless. Any residue of the special fund shall be returned to the complainant or the whole sum if the complaint is well founded. If the complainant fails to make the required deposit within five days after notice of the amount required, the complaint may be dismissed by the Board. (1948 C., Ch. 16, § 24; 1960 C., § 103.040; 1994 C., § 6.12.040.)

6.12.050 Consideration of complaint.

When the deposit required by Section 6.12.040 shall have been made, the Board of Public Service at its next meeting shall consider whether the complaint may be determined upon oral or documentary evidence, only, in which case the Board shall fix the day and hour for receiving evidence and consideration of the complaint. But if the nature of the complaint is such as to require examination of work done or material furnished, the Board shall appoint two or more of its members as Commissioners to make examinations and tests and report the facts found to the Board. When the Commissioners make a report the Board shall fix a day

and hour for the consideration of the complaint. (1948 C., Ch. 16, § 25; 1960 C., § 103.050; 1994 C., § 6.12.050.)

6.12.060 Notice of hearing.

Notice attested by the Secretary of the Board of Public Service of the day and hour fixed for consideration of a complaint shall be served by mailing a notice of the day, hour and place of hearing such complaint and copy attested by the Secretary of the Board, of complaint to the address given by the complainant and to the business or residence address of the contractor whose work is complained of, or by delivery in person. (1948 C., Ch. 16, § 26; 1960 C., § 103.060; 1994 C., § 6.12.060.)

6.12.070 Process for witnesses—Special deposit required.

The President of the Board of Public Service shall have full power and authority to issue all needful process for the attendance of witnesses and the production of papers. The process shall be executed by the City Marshal. The party applying therefor shall deposit with the City Treasurer an amount equal to two dollars ($2.00) for each witness as a special fund to pay cost of service and attendance of witness. (1948 C., Ch. 16, § 27; 1960 C., § 103.070; 1994 C., § 6.12.070.)

6.12.080 Hearing—Testimony under oath.

The Board of Public Service shall proceed with the hearing of the complaint on the day fixed as provided in Section 6.12.070. The complainant and contractor shall be entitled to be heard by himself or by counsel. All testimony of witnesses shall be given under oath, and the President or President Pro Tempore of the Board is authorized to administer such oaths. (1948 C., Ch. 16, § 28; 1960 C., § 103.080; 1994 C., § 6.12.080.)

6.12.090 Decision—Record.

After full hearing the Board of Public Service shall render its decision as soon thereafter as practicable, which decision shall be concurred in by a majority of the members thereof present at the hearing. The decision, with the names of the members voting for or against, shall be set out in the records of the Board. (1948 C., Ch. 16, § 29; 1960 C., § 103.090; 1994 C., § 6.12.090.)

6.12.100 Mayor to be given copy of decision.

Immediately upon the rendition of the final decision the President of the Board of Public Service shall furnish the Mayor with a copy of the records of the Board relating to the complaint and of the final decision. (1948 C., Ch. 16, § 30; 1960 C., § 103.100; 1994 C., § 6.12.100.)

Chapter 6.16

PUBLIC WORKS CONTRACT

Sections:

6.16.010 Debarred contractor.
6.16.020 Contract requirements.
6.16.030 Action to debar—Procedure.

6.16.010 Debarred contractor.

No contract or subcontract for the construction of City improvements of whatsoever kind or character or for the doing of any public work shall be let to any bidder which is debarred from the award of City contracts as hereinafter set out or is managed, controlled or more than fifty percent (50%) owned by a person or entity so debarred. A contractor which is debarred or is managed, controlled or more than fifty percent (50%) owned by a person or entity that is debarred shall not act as a subcontractor on any such City contract. (1994 C., § 6.16.010; Ord. No. 61913, § 1, 1990.)

6.16.020 Contract requirements.

In the event that any contractor or subcontractor on a City contract for the construction of improvements or the doing of any public work is determined, as hereinafter set out, to be intentionally and without good cause violating the requirements of the contract in any of the ways listed below, then such contractor or subcontractor and its chief operating officer, and any owner or part owner who participated in the management of the company at the time of the violation, may be debarred from participating, either as a contractor or subcontractor, in other such City contracts for a period of one (1) year for the first offense, three (3) years for the second offense and five (5) years for any subsequent offense, except that in the case of extenuating circumstances which are set out in writing in detail by the hearing panel, such periods may be reduced by not more than one-half (½). The following requirements shall be incorporated in all contracts or subcontracts for the construction of City improvements of whatsoever kind or character or for the doing of any public work; violations of any of said requirements may be considered as grounds for debarment:

A. The contractor or subcontractor shall not incorporate materials into the work which are not in

accordance with or equal to the materials specified in the contract except as otherwise agreed to between the contractor or subcontractor and City.

B. The contractor or subcontractor shall not perform any work on the contract without the insurance customarily and ordinarily obtained in connection with the work to be performed being in full force and effect.

C. The contractor or subcontractor shall complete the contract work in a timely manner.

D. The contractor or subcontractor shall obtain all customarily and ordinarily required permits, and the contractor or subcontractor shall also observe all required safety precautions in connection with handling, storage and use of explosives.

E. The contractor or subcontractor shall not conceal substandard work from inspectors.

F. The contractor or subcontractor shall not falsify test results.

G. The contractor or subcontractor shall repair all property damaged in the course of doing the work.

H. The contractor or subcontractor shall pay suppliers.

I. The contractor or subcontractor shall comply with the guidelines and requirements of the City of St. Louis relating to equal opportunity in employment.

J. The contractor or subcontractor shall dispose of hazardous or regulated waste only in those locations which have been approved as provided in the contract.

K. The contractor or subcontractor shall pay any applicable tax due to the City.

L. The contractor or subcontractor shall pay the wage rates, including appropriate fringe benefits, as prescribed in the contract, and shall include provisions in subcontracts that such wage rates, including appropriate fringe benefits, shall be paid.

M. The contractor or subcontractor shall not permit any subcontractor or any employee to violate any of the requirements listed herein. (1994 C., § 6.16.020; Ord. No. 61913, § 2, 1990.)

6.16.030 Action to debar—Procedure.

An action to debar a contractor may be initiated and shall proceed as follows:

A. *Initiation of Proceeding.* The proceeding may be initiated by the filing of a written complaint with the Board of Public Service by any of the following individuals having knowledge or information pertaining to violation of the aforementioned contract requirements: (1) any department head of the City of St. Louis, (2) any construction trades labor union representing employees who customarily perform work for contractors or subcontractors on City construction and public works projects, (3) any contractor or subcontractor who customarily performs work on City construction and public works projects, and (4) any citizen and taxpayer of the City. The complaint shall include a statement of the alleged violations of requirements by the contractor or subcontractor. After receiving such a complaint the President of the Board of Public Service shall appoint an impartial hearing panel consisting of three (3) of its members or their designees who shall perform a preliminary investigation of the complaint and, if said investigation reveals that there is good cause to believe that a violation or breach has occurred, the hearing panel shall issue a written notice of the complaint to the contractor or subcontractor and to the President of the Board of Public Service. A copy of the original complaint shall be attached to the notice. The notice shall include a statement for the reasons for the proposed debarment, the date of mailing and the date, time and place of a hearing on the matter.

B. *Notice.* Any notice required by the preceding and any other notice to the contractor or subcontractor shall be sent postage pre-paid by certified U.S. mail to the contractor or the subcontractor at its last known address, or to the office of its registered agent, if it is a corporation.

C. *Conduct of Hearing.* The hearing shall be held in accordance with procedures established by the Board of Public Service. Unless a delay is requested by the contractor or subcontractor, the hearing shall take place on a date not later than sixty (60) days after notice is received by the contractor or subcontractor. In no event shall the hearing be conducted and concluded more than ninety (90) days after notice is received by the contractor or subcontractor.

D. *Decision.* Within sixty (60) days after the hearing is concluded, the panel shall issue its decision in writing stating whether the contractor or subcontractor is debarred from future participation in contracts with the City of St. Louis, and if so, the decision shall also state reasons for debarment and the period of time for which said debarment shall extend.

E. *Notice of Decision.* The contractor or subcontractor shall be given prompt written notice of the decision of the hearing panel, and a copy of such

decision shall be promptly mailed or otherwise furnished to the contractor or subcontractor at its last known address.

F. *Finality of Decision.* The decision of the hearing panel shall be final and conclusive unless the contractor or subcontractor, within thirty (30) days after issuance of the decision, commits a timely action for review in a court of competent jurisdiction in accordance with applicable law, including the Missouri Administrative Procedures Act, RSMo Ch. 536. (1994 C., § 6.16.030; Ord. No. 61913, § 3, 1990.)

Chapter 6.17

CERTIFICATION OF NON-DEBARMENT

Sections:

6.17.010 Debarment prohibited.
6.17.020 Certification of non-debarment.
6.17.030 Penalty.

6.17.010 Debarment prohibited.

No contract or subcontract entered into by the Board of Public Service for the construction of City improvements of whatsoever kind or character or for the doing of any public work and no contract authorized by ordinance for the development or redevelopment of any property within the City shall be let to any contractor, subcontractor or developer unless such contractor, subcontractor or developer certifies, on a written form to be provided by the Board of Public Service, that such person or entity is not currently debarred from the award of contracts by the State of Missouri or the Federal Government. (1994 C., § 6.17.010; Ord. No. 65709, § 1, 2002.)

6.17.020 Certification of non-debarment.

No contract or subcontract entered into by the Board of Public Service for the construction of City improvements of whatsoever kind or character or for the doing of any public work and no contract authorized by ordinance for the development or redevelopment of any property within the City shall be let to any contractor or developer unless such contractor or developer certifies, on a form to be provided by the Board of Public Service, that such is not managed, controlled or more than fifty percent (50%) owned by a person or entity currently debarred from the award of contracts by the State of Missouri or the Federal Government. (1994 C., § 6.17.020; Ord. No. 65709, § 2, 2002.)

6.17.030 Penalty.

Any contractor, subcontractor or developer who knowingly files a false certification as part of the requirements of this chapter shall pay a penalty equal to ten percent of the total value of the contract and shall be prohibited from bidding on City contracts for a period of five (5) years. (1994 C., § 6.17.030; Ord. No. 65709, § 3, 2002.)

Chapter 6.20

SERVICE CONTRACTS

Sections:

6.20.010 Definitions.
6.20.020 Contract requirements.
6.20.030 Contract to lease premises.
6.20.040 Bond required.
6.20.050 Debarment of contractor.
6.20.060 Action to debar—Procedure.
6.20.070 Contract with debarred contractor prohibited.
6.20.080 Recordkeeping requirements.

6.20.010 Definitions.

The following terms shall have the following meanings for purpose of this chapter:

A. "Minimum prevailing fringe benefits" means the minimum fringe benefits to be provided by service contractors to service employees as determined by the United States Secretary of Labor, or his authorized representative, to be prevailing for such employees in the locality of the St. Louis metropolitan area pursuant to 41 U.S.C. Section 351 et seq. as amended. Such fringe benefits shall include medical or hospital care, pensions on retirement or death, compensation for injuries or illness resulting from occupational activity, or insurance to provide any of the foregoing, unemployment benefits, life insurance, disability and sickness insurance, accident insurance, vacation and holiday pay, costs of apprenticeship or other similar programs and other bona fide fringe benefits to be provided by the service contractor and not otherwise required by federal, state or local law. The term "minimum prevailing fringe benefits" may include any contributions of fringe benefits equivalent to the foregoing or differential payments in cash.

B. "Minimum prevailing wage" means the minimum monetary wages to be paid by service contractors

to service employees as determined by the United States Secretary of Labor, or his authorized representative, in accordance with the prevailing rates for such employees in the locality of the St. Louis metropolitan area pursuant to 41 U.S.C. Section 351 et seq., as amended.

C. "Service contract" means any contract, the purpose of which is to furnish services in either the City of St. Louis, including any of its departments, agencies or authorities, or any lessee of the City of St. Louis. The term "service contract" shall include any subcontract to provide such services. The term "service contract" shall not include (1) any contract for construction, alteration and/or repair of any building, capital improvement or equipment owned by the City or (2) any contract pertaining to work required to be done in accordance with the Missouri Prevailing Wage Law, RSMo 290.210 through 290.340.

D. "Service contractor" means any person, firm, corporation or other entity entering into a service contract with either the City of St. Louis or any lessee of the City of St. Louis. The term "service contractor" shall also include any person, firm, corporation or other entity who subcontracts to furnish said services.

E. "Service employee" means any person employed in the performance of a service contract. The term shall not include any person engaged in an executive, administrative or professional capacity. (1994 C., § 6.20.010; Ord. No. 62124, § 1, 1990.)

6.20.020 Contract requirements.

Every service contract entered into by the City, whether negotiated or advertised, and any corresponding bid specification proposed by any service contractor, the principal purpose of which is to furnish services to the City or any of its departments, agencies or authorities through the use of service employees, shall contain:

A. A provision specifying the minimum prevailing wage to be paid by the service contractor to said employees;

B. A provision specifying the minimum prevailing fringe benefits to be provided by the service contractor to service employees;

C. A representation by the service contractor to abide by the terms of this chapter and to pay and provide to all service employees the minimum prevailing wage and minimum prevailing fringe benefits as noted in the service contract; and

D. A provision as to whether the service contract or bid contemplates or includes any subcontract to furnish services. If so, the primary service contractor shall warrant and represent to the City that any service subcontract shall contain (1) provisions specifying the minimum prevailing wage and the minimum prevailing fringe benefits to be paid to the subcontractor's service employees and (2) a representation by the subcontractor to abide by the terms of this chapter and to pay and provide to all service employees said minimum prevailing wage and minimum prevailing fringe benefits as noted in the service subcontract.

The City shall not enter into any service contract which does not contain the aforementioned provisions and representations as is necessary. (1994 C., § 6.20.020; Ord. No. 62124, § 2, 1990.)

6.20.030 Contract to lease premises.

Every contract to lease property owned by the City shall contain a statement by the lessee as to whether the lessee contemplates entering into any service contract pertaining to the leased premises. If so, the lessee shall warrant and represent to the City that any such service contract shall include:

A. A provision specifying the minimum prevailing wages to be paid by the service contractor to any service employee;

B. A provision specifying the minimum prevailing fringe benefits be provided by the service contractor to any service employee; and

C. 1. A representation by the service contractor to abide by the terms of this chapter and to pay and provide to all service employees the minimum prevailing wage and minimum prevailing fringe benefits as noted in the service contract.

2. If the lessee contemplates entering into a service contract pertaining to the lease property, the lease shall also include a warranty and representation by the lessee that the lessee shall not enter into any service contract with (a) any service contractor debarred in accordance with this chapter, or (b) any service contractor managed, controlled, or more than fifty percent (50%) owned by a person or entity so debarred.

3. The City shall not enter into any contract to lease property owned by the City which does not contain the aforementioned provisions and representation as is necessary. (1994 C., § 6.20.030; Ord. No. 62124, § 3, 1990.)

6.20.040 Bond required.

Every service contract entered into by the City shall also require that the service contractor provide a bond, in an amount and form approved by the Comptroller, which shall be filed with the Register and which shall contain such provisions as will guarantee the faithful performance of the prevailing wage and fringe benefits clauses as specified by the service contract. The bond shall be written by a person, firm or corporation authorized to do business in the state and shall be approved by the Comptroller. (1994 C., § 6.20.040; Ord. No. 62124, § 4, 1990.)

6.20.050 Debarment of contractor.

Any service contractor found to be intentionally and without good cause violating the contractual provisions pertaining to the payment and provision of minimum prevailing wages and minimum prevailing fringe benefits may be debarred from any participation whatsoever in other service contracts entered into by the City for a period of one (1) year for the first offense, three (3) years for the second offense and five (5) years for any subsequent offense, except that in the case of extenuating circumstances which are set out in writing by the hearing panel, such periods may be reduced by not more than one-half (½). (1994 C., § 6.20.050; Ord. No. 62124, § 5, 1990.)

6.20.060 Action to debar—Procedure.

An action to debar such a service contractor may be initiated and shall proceed as follows:

A. *Initiation of Proceeding.* The proceeding may be initiated by the filing of a written complaint with the Board of Public Service by any of the following individuals having knowledge or information pertaining to a violation: (1) any service employee, (2) the head of any department, agency or authority of the City, (3) any labor union representing service employees, (4) any service contractor who customarily performs work for the City, its departments, agencies or authorities, and (5) any citizen and taxpayer of the City. The complaint shall include a statement of the alleged violations by the service contractor. After receiving such a complaint, the President of the Board of Public Service shall appoint an impartial hearing panel consisting of three of its members or their designees who shall perform a preliminary investigation of the complaint and, if said investigation reveals that there is good cause to believe that a violation or breach has occurred, the hearing panel shall issue a written notice of the complaint to the service contractor and to the President of the Board of Public Service. A copy of the original complaint shall be attached to the notice. The notice shall include a statement for the reasons for the proposed debarment, the date of mailing and the date, time and place of a hearing on the matter.

B. *Notice.* Any notice required by the preceding and any other notice to the service contractor shall be sent postage pre-paid by certified U.S. mail to the service contractor at its last known address, or to the office of its registered agent, if it is a corporation.

C. *Conduct of Hearing.* The hearing shall be held in accordance with procedures established by the Board of Public Service. Unless a delay is requested by the service contractor, the hearing shall take place on a date not later than sixty (60) days after the notice is received by the service contractor. In no event shall the hearing be conducted and concluded more than (90) days after notice is received by the service contractor.

D. *Decision.* Within sixty (60) days after the hearing is concluded, the panel shall issue its decision in writing stating whether the service contractor is debarred from future participation in contracts with the City, and if so, the decision shall also state reasons for debarment and the period of time for which said debarment shall extend.

E. *Notice of Decision.* The service contractor shall be given prompt written notice of the decision of the hearing panel, and a copy of such decision shall be promptly mailed or otherwise furnished to the service contractor in accordance with Subsection B of this section.

F. *Finality of Decision.* The decision of the hearing panel shall be final and conclusive unless the service contractor, within thirty (30) days after issuance of the decision, commences a timely action for review in a court of competent jurisdiction in accordance with applicable law, including the Missouri Administrative Procedures Act, RSMo Ch. 536. (1994 C., § 6.20.060; Ord. No. 62124, § 6, 1990.)

6.20.070 Contract with debarred contractor prohibited.

No service contract shall be entered into by the City with any service contractor debarred in accordance with this chapter or with any service contractor managed, controlled, or more than fifty percent (50%) owned by a debarred person or entity so debarred. A service contractor which is debarred or which is man-

aged, controlled or more than fifty percent (50%) owned by a debarred person or entity shall not act as a subcontractor on any City service contract. (1994 C., § 6.20.070; Ord. No. 62124, § 7, 1990.)

6.20.080 Recordkeeping requirements.

Any service contractor engaged in work under a service contract shall keep full and accurate records identifying the names and classification of every service employee employed by them in the performance of the contract, together with an accurate record of the number of hours worked by each employee and the actual wages and fringe benefits paid therefor. Said records shall be open to inspection by the Comptroller of the City or his authorized representative at any reasonable time and as often as may be necessary and such records shall not be destroyed or removed from their customary location for the period of one (1) year following the completion of the work in connection with which the records are made. (1994 C., § 6.20.080; Ord. No. 62124, § 8, 1990.)

Title 7

(RESERVED)

Title 8

BUSINESS TAXES, LICENSES AND REGULATIONS

Chapters:

8.02	Licenses
8.04	Merchants and Manufacturers Tax Equalization Board
8.06	Business License Tax
8.07	Graduated Business License Tax
8.08	Entertainment License Tax
8.10	Cigarette Occupation Tax
8.12	Contractors
8.12A	Contractors
8.13	Alarm System Businesses
8.14	Ambulances
8.16	Arcades
8.18	Auctions and Auctioneers
8.20	Banks, Brokers, Insurance and Bonding Companies
8.22	Reserved
8.24	Bathhouses
8.25	Bed and Breakfast Establishments
8.26	Billiard and Pool Rooms
8.28	Bottle Registration
8.28A	Brick Dealers
8.29	Cable Television
8.29A	Cable Television Franchise
8.29B	Cable Television Franchise Renewal—St. Louis Tele-Communications
8.29C	Broadband Internet Access
8.30	Commission Merchants and Merchandise Brokers
8.32	Dance Halls
8.34	Dance Studios
8.36	Detective Agencies
8.37	Domestic Partnerships
8.38	Embalmers
8.40	Employment Agencies
8.41	Firearms Manufacture
8.43	Horse-Drawn Vehicles
8.44	Information Date Bureaus
8.46	Insurance Adjustors
8.50	Junkyards
8.52	Laundries and Dry Cleaning
8.54	Manufacturers
8.55	Massage Therapists and Massage Facilities
8.56	Merchants
8.58	Miniature Pony Tracks
8.60	Mining
8.62	Motor Buses
8.64	Motor Carrier Transportation Brokers
8.66	Motor Fuel Dealers
8.68	Reserved
8.70	Parking Stations
8.72	Pawnbrokers
8.74	Photographers
8.75	Plumbers
8.75A	Private Security Personnel
8.76	Public Garages
8.78	Public Photographic Studios
8.80	Real Estate Agents and Brokers
8.82	Secondhand and Junk Dealers
8.83	Service Stations
8.83A	Short-Term Lending Code
8.84	Solicitations
8.86	Solid Fuel
8.88	Steam
8.90	Stockyards, Sales Stables and Cattle Dealers
8.92	Street Railways

8.96 **Surveyors**

8.97 **Tattoo Parlors**

8.98 **Taxicabs and Service Cars**

8.100 **Theaters, Shows and Other Public Amusements**

8.102 **Ticket Brokers**

8.104 **Towel Supply Companies**

8.106 **Undertakers**

8.108 **Vault Cleaners**

8.108A **Vendors**

8.109 **Vendors at Fairs and Festivals**

8.110 **Wreckers**

8.114 **Miscellaneous Vocations**

8.116 **Location and Operation of Certain Businesses**

8.118 **Minority and Women-Owned Business Enterprise Program**

8.120 **Criminal History of Applicants**

8.122 **Third-Party Food Delivery Services**

8.124 **Fingerprint-Based Background Check Requirements**

Chapter 8.02

LICENSES

Requirement for summary of license permit application

See §§ 3.02.030—3.02.050

Charter:

Art. I § 1(23) Regulation of business

Art. I § 1(24) License taxes

Art. XVIII § 14 Examinations for licenses

Art. XX License fees

RSMo:

RSMo 71.610 et seq. (2016) Taxing powers

Sections:

8.02.010 **Statement of clearance—Required.**

8.02.020 **Statement of clearance—Issuance.**

8.02.030 **Statement of clearance—Bond.**

8.02.040 **Statement of clearance—Issuance of license.**

8.02.050 **Statement of clearance—Unlawful issuance.**

8.02.060 **Statement of clearance—Form.**

8.02.070 **Statement of clearance—Penalty for violation.**

8.02.071 **Unsatisfied final judgements—Issuance of license.**

8.02.072 **Unsatisfied final judgements—Revocation of license.**

8.02.073 **Refusal or revocation—Notification.**

8.02.074 **License tax not refundable.**

8.02.075 **Appeal.**

8.02.080 **License Collector—Office.**

8.02.090 **License Collector—Employee bonds.**

8.02.100 **Definitions.**

8.02.110 **Police duties.**

8.02.120 **Violations.**

8.02.130 **License—Form.**

8.02.140 **License—Nontransferable.**

8.02.150 **Inquiry into applicant.**

8.02.160 **Repealed.**

8.02.170 **Failure to take out license.**

8.02.180 **Failure to take out license—Extension of time.**

8.02.010 Statement of clearance—Required.

The License Collector shall not issue any merchants, manufacturers, franchise, business or occupational license or renewal thereof, to any person, partnership or corporation, or anyone who contracts for personal service to be performed by individuals within the City, which under the law the License Collector is empowered to issue, unless and until the applicant for such license produces a written statement of clearance issued jointly by the Collector of Revenue and the License Collector certifying that no current or past personal property, real estate tax, payroll tax, business license taxes and/or earnings taxes are due and payable to the City and a statement from the Director of Revenue of the State of Missouri certifying that the applicant is in possession of a retail sales license, if such a license is required. (1948 C., Ch. 37, § 1; 1960 C., § 611.010; 1994 C., § 8.02.010; Ord. No. 63454, § 1, 1995; Ord. No. 62564, §§ 1, 2, 1992; Ord. No. 54850, § 1, 1968.)

City Counselor Ops.: 8036, 8763, 9459, 9568

8.02.020 Statement of clearance—Issuance.

It shall be the duty of the Collector of Revenue to issue a statement of clearance as to the current status of the applicant's personal property and/or earnings taxes upon the request of the License Collector, which request shall include the name, address and business

name of the applicant. (1960 C., § 611.020; 1994 C., § 8.02.020; Ord. No. 54850, § 2, 1968.)

City Counselor Ops.: 9568

8.02.030 Statement of clearance—Bond.

If the person, individual, partnership or corporation has not been assessed or liable for the most recent year's personal property and/or earnings taxes, the Collector of Revenue may require a bond in the penal sum of one thousand dollars, to secure the payment of the current personal property and/or earnings taxes, with a surety acceptable to the Comptroller in the form prescribed by the City Counselor. Upon receiving the bond, the clearance shall be issued. (1960 C., § 611.030; 1994 C., § 8.02.030; Ord. No. 54850, § 3, 1968.)

City Counselor Ops.: 9568

8.02.040 Statement of clearance—Issuance of license.

It shall be unlawful for the License Collector to issue any license or renewal thereof, without first securing a statement of clearance, as set forth in Section 8.02.020, from the Collector of Revenue. (1960 C., § 611.040; 1994 C., § 8.02.040; Ord. No. 54850, § 4, 1968.)

City Counselor Ops.: 9568

8.02.050 Statement of clearance—Unlawful issuance.

It shall be unlawful for the Collector of Revenue to issue a statement of clearance as provided herein when any personal property and/or earnings tax is due or owing to the City. (1960 C., § 611.050; 1994 C., § 8.02.050; Ord. No. 54850, § 5, 1968.)

City Counselor Ops.: 9568

8.02.060 Statement of clearance—Form.

The Comptroller shall issue rules and regulations and prescribe the form of the statement of clearance in order to more effectively carry out the provisions of Sections 8.02.010—8.02.070. (1948 C., Ch. 37, § 2; 1960 C., § 611.060; 1994 C., § 8.02.060; Ord. No. 54850, § 6, 1968.)

City Counselor Ops.: 9568

8.02.070 Statement of clearance—Penalty for violation.

Any officer or person who shall violate any provision of Sections 8.02.010—8.02.060 shall upon the conviction thereof be punished by a fine of not more than five hundred dollars or not less than one hundred dollars or by imprisonment in the City Workhouse for not more than ninety days or by both such fine and imprisonment. (1960 C., § 611.070; 1994 C., § 8.02.070; Ord. No. 54850, § 7, 1968.)

8.02.071 Unsatisfied final judgements—Issuance of license.

The License Collector shall not issue any license to any person, firm, or corporation that the License Collector has been notified in writing by the judgment holder that said person, firm or corporation has an unsatisfied final judgment relating to the nature of the license of 60 days or more against it in an amount of five thousand ($5,000.00) dollars or less, unless said contractor posts the amount of the judgment with the License Collector or reaches a payment agreement with the judgment holder. (1994 C., § 8.02.071; Ord. No. 62619, § 1, 1992.)

8.02.072 Unsatisfied final judgements—Revocation of license.

The License Collector shall revoke any license issued by him to any person, firm or corporation that the License Collector has been notified in writing by the judgment holder that said person, firm or corporation has an unsatisfied final judgment relating to the nature of the license of 60 days or more against it in an amount of five thousand ($5,000.00) dollars or less, unless said contractor posts the amount of the judgment with the License Collector or reaches a payment agreement with the judgment holder. (1994 C., § 8.02.072; Ord. No. 62619, § 2, 1992.)

8.02.073 Refusal or revocation—Notification.

Prior to the refusal to issue or the revocation of a license, the License Collector shall notify the applicant for the license or the licensee, by registered mail or by personal notice, that a license will not be issued or a previously issued license will be revoked. Any person so notified has ten days from receipt of said notice to object in writing to the License Collector of said refusal to license or revocation of license. If no such notice is received by the License Collector within 10 days, no new license may issue and any previously issued license shall be immediately revoked and the business cannot operate unless and until a new license is issued. The License Collector shall hold a hearing within ten days of the letter of objection to determine whether or not a final unsatisfied judgment relating to the nature of the license of 60 days or more exists. Any licensee shall be

allowed to continue to operate until the License Collector makes a determination whether or not a final unsatisfied judgment of 60 days or more exists, but no new license shall be issued until a determination is made. The License Collector shall notify the applicant or licensee, in writing within ten days of this determination. (1994 C., § 8.02.073; Ord. No. 62619, § 3, 1992.)

8.02.074 License tax not refundable.

If the License Collector determines that a final unsatisfied judgment relating to the nature of the license of 60 days or more exists, he shall not issue a license to the applicant, and he shall revoke any previously issued license, unless said contractor posts the amount of the judgment with the License Collector or reaches a payment agreement with the judgment holder. The licensee is not entitled to a refund for the license tax previously paid. (1994 C., § 8.02.074; Ord. No. 62619, § 4, 1992.)

8.02.075 Appeal.

Any person aggrieved by a determination of the License Collector may appeal his determination to the Board of Tax Appeals within ten days of the determination of the License Collector pursuant to the procedures contained in Section 8.06.230 through Section 8.06.290 of the Revised Code of the City of St. Louis. (1994 C., § 8.02.075; Ord. No. 62619, § 5, 1992.)

8.02.080 License Collector—Office.

The License Collector shall be provided with an office in the City Hall. (1948 C., Ch. 37, § 3; 1960 C., § 610.010; 1994 C., § 8.02.080.)

RSMo:

RSMo 82.310 et seq. (2016) License collector cities of 300,000 inhabitants or more

RSMo 92.040 (2016) Taxation and licensing of merchants and manufacturers by certain cities

RSMo 150.350 (2016) Manufacturers taxation and collection in St. Louis city

RSMo 150.090 (2016) Merchant taxation and collection in St. Louis city

McQuillin:

44.132 Tax collectors

8.02.090 License Collector—Employee bonds.

The employees of the License Collector shall give bond to the License Collector in the penal sums as follows: The cashier in the sum of ten thousand dollars, the assistant cashier in the sum of five thousand dollars, the bookkeeper and assistant bookkeeper, and the clerks, each in the sum of twenty-five hundred dollars. All bonds shall be subject to the approval of the License Collector and shall be conditioned for the faithful performance of the duties of the respective offices and to indemnify the License Collector against any loss or damage occasioned by or on account of the acts of the employees. (1948 C., Ch. 37, § 4; 1960 C., § 610.020; 1994 C., § 8.02.090.)

8.02.100 Definitions.

The words "license" and "license tax," whenever used in this Code, shall include licenses for all purposes authorized or required by law or ordinance and also the tax on telegraph and telephone poles, the dog tax, merchants' ad valorem tax, the manufacturer's ad valorem tax, the vehicle license tax and the special tax on foreign insurance companies, and excepting always dramshop, water and boat or wharfage licenses. (1948 C., Ch. 37, § 5; 1960 C., § 610.030; 1994 C., § 8.02.100.)

8.02.110 Police duties.

It shall be the duty of the police to prevent any persons carrying on a business or object for which a license is required without having a license for that purpose. They shall report to the License Collector all violations of the laws and ordinances relating to licenses and license taxes. (1948 C., Ch. 37, § 6; 1960 C., § 610.040; 1994 C., § 8.02.110.)

City Counselor Ops.: 8430, 9459, 9936

8.02.120 Violations.

The License Collector shall report to the police all persons who fail to take out the proper license or pay the license tax, and the police shall cause the arrest and conviction of offenders. (1948 C., Ch. 37, § 7; 1960 C., § 610.050; 1994 C., § 8.02.120.)

8.02.130 License—Form.

All licenses shall be issued in blank by the Register under the seal of the City, and signed by the License Collector, and shall be in a form as prescribed by the Register. (1948 C., Ch. 37, § 15; 1960 C., § 610.060; 1994 C., § 8.02.130; Ord. No. 58578, § 1, 1982.)

Charter:

Art. IX § 2 Attestation and issuance of licenses and forms

8.02.140 License—Nontransferable.

No license granted by this City except cart, wagon, dray, liquor or nonintoxicating beer licenses shall be assignable or transferable. No license shall authorize any person to do business or act under it but the person

named therein nor at more than one place. A separate license shall be required for each name under which a person acts or engages in business.

No assignment or transfer of any license shall be valid or give any right or permission to the assignee or transferee to act thereunder unless the assignment or transfer shall be approved and countersigned by the License Collector. It shall be the duty of the License Collector to keep a record of all assignments or transfers of licenses approved and countersigned by him. (1948 C., Ch. 37, § 16; 1960 C., § 610.070; 1994 C., § 8.02.140; Ord. No. 50556, § 1, 1961; Ord. No. 48420, § 1, 1957.)

City Counselor Ops.: 8423, 8819

8.02.150 Inquiry into applicant.

A. The License Collector, upon receipt of written application for issuance of a license, shall make all due and proper inquiry into the character of all applicants for license. He shall not grant a license to applicants for such license unless he has good and sufficient assurance and reason to believe of his own knowledge that all the applicants are appropriate persons to receive the license.

B. Any person who has pleaded guilty or nolo contendere to, or been convicted of, or been found guilty of violating any of the provisions of RSMo 566.032, statutory rape and attempt to commit; or RSMo 566.067, child molestation, first degree; or RSMo 566.068, child molestation, second degree; or RSMo 566.083, sexual misconduct involving a child; or RSMo 566.086, sexual contact with a student; or RSMo 566.151, enticement of a child; or RSMo 566.212, sexual trafficking of a child; or RSMo 566.213, sexual trafficking of a child, first degree; or RSMo 568.020, incest; or RSMo 568.045, endangering the welfare of a child in the first degree; or Subsection 2 of RSMo 568.080, use of a child in a sexual performance; or RSMo 568.090, promoting a sexual performance by a child; or RSMo 573.023, sexual exploitation of a minor; or RSMo 573.025, promoting child pornography in the first degree; or RSMo 573.035, promoting child pornography in the second degree; or RSMo 573.037, possession of child pornography; or RSMo 573.040, furnishing pornographic material to minors; shall not be granted a business license if that business involves the likely direct interaction with persons under the age of eighteen (18). This section shall include such businesses that directly solicit, seek, advertise, market, promote, publicize and market child-centered and child-based events, activities and programs which shall include, but are not limited to, amusement arcades, video arcades, public swimming pools, child care facilities, event facilities, skate parks or rinks, movie theaters and bowling alleys. (1948 C., Ch. 37, § 17; 1960 C., § 610.080; 1994 C., § 8.02.150; Ord. No. 67909, § 2, 2008.)

Editor's Note:

RSMo 566.212 has been transferred to RSMo 566.211. RSMo 566.213 has been transferred to RSMo 566.210. RSMo 568.080 has been transferred to RSMo 573.200. RSMo 568.090 has been transferred to RSMo 573.205.

City Counselor Ops.: 10314

8.02.160 Repealed.

Editor's Note:

Ord. No. 70813, § 9, adopted July 16, 2018, repealed § 8.02.160, which pertained to the requirement of a consent petition required for certain types of businesses and derived from 1948 C. Ch. 37 § 18; 1960 C. § 610.090.

8.02.170 Failure to take out license.

In addition to any other penalties, any person who is required to take out a license, or any person whose license has expired, and notice has been given by the License Collector, shall, if not paid within ten days after notice has been given, pay a penalty of one hundred dollars ($100.00), and for every ten days thereafter one hundred dollars ($100.00) shall be added as a penalty, until the party required to take out the license shall have complied with the provisions regulating licenses in this chapter. Any person in violation of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00) annually. This penalty shall be collected with the license by the License Collector and paid into the City Treasury. (1948 C., Ch. 37, § 19; 1960 C., § 610.100; 1994 C., § 8.02.170; Ord. No. 68557, § 1, 1-20-2010.)

8.02.180 Failure to take out license—Extension of time.

In case of neglect occasioned by the sickness or absence of an individual or of an officer of any corporation, joint stock company or association required to make and file either a license tax return or a license application, or for other sufficient reason, the License Collector, at his discretion, may grant an extension of time, upon written application having been made therefor, for filing of any said license tax return or license application as he deems necessary, not to exceed ninety (90) days. The right of the License Collector to grant

any extension of time is conditional upon the written application being made prior to the date of any said license tax return or license application is due. Notwithstanding any other provision of this Code when an extension of time is allowed, no penalty for a late filing shall accrue if said return or license application is filed on or before the date to which it has been extended. The License Collector shall provide in writing a notice of any extension which is granted. (1960 C., § 610.200; 1994 C., § 8.02.180; Ord. No. 57221, § 1, 1976.)

For extension of payment, see § 8.06.100

Chapter 8.04

MERCHANTS AND MANUFACTURERS TAX EQUALIZATION BOARD

Sections:

8.04.010 **Sessions.**

8.04.020 **Duties.**

8.04.030 **Powers.**

8.04.040 **Quorum.**

8.04.050 **Oath.**

8.04.060 **License Collector to attend meetings—Records open for inspection.**

8.04.070 **Preparation and certification of payroll.**

8.04.010 Sessions.

The members of the Board of Merchants and Manufacturers Tax Equalization shall meet in the office of the License Collector on the first Monday following their appointment to the Board by the Mayor for the purpose of adopting rules, regulations, and policies necessary to carry out the duties imposed on the Board as provided by law. The Board of Merchants and Manufacturers shall meet for the purpose of equalizing the valuation of merchants and manufacturers return statements on the second Monday in July annually and shall remain in session for twelve weeks, if the business coming before it requires, and the Board may be called into session at such other times as the Mayor of the City may direct. (1948 C., Ch. 37, § 8; 1960 C., § 148.010; 1994 C., § 8.04.010; Ord. No. 49992, § 1, 1960; Ord. No. 49134, § 1, 1958; Ord. No. 46145, § 1, 1952.)

City Counselor Ops.: 9459

8.04.020 Duties.

The Board, in addition to performing the duties and having the powers prescribed by law, shall review, adjust and correct the license and license tax books, determine as far as possible whether all persons have been listed who are required to have a license or to pay a license tax, and whether all persons have made correct returns where such returns are required by law or ordinance in connection with licenses and license taxes, and to this end shall add or strike off names.

This Board shall also carefully examine all bonds which have been given to the collector under the provisions of the laws and ordinances relating to license and license taxes, and before final adjournment shall report in writing to the Mayor any and all bonds which are not in due form of law or of whose solvency there is any reasonable doubt, and also a list of all cases where the License Collector has failed, improperly, to require a bond to be filed. (1948 C., Ch. 37, § 9; 1960 C., § 148.020; 1994 C., § 8.04.020.)

RSMo:

RSMo 150.090 (2016) Merchant taxation and collection in St. Louis city

RSMo 150.350 (2016) Manufacturers taxation and collection in St. Louis city.

City Counselor Ops.: 9459

8.04.030 Powers.

The Board shall have power to send for persons or papers and to compel the attendance of witnesses. To this end the marshal of the City shall execute process as may be issued by it. (1948 C., Ch. 37, § 10; 1960 C., § 148.030; 1994 C., § 8.04.030.)

8.04.040 Quorum.

The majority of the Board shall constitute a quorum, and a majority shall determine all matters of appeal, equalization revision or correction of assessment or of any other matter properly coming before the Board. (1948 C., Ch. 37, § 11; 1960 C., § 148.040; 1994 C., § 8.04.040.)

8.04.050 Oath.

The members of the Board, before entering upon the duties of their office, shall take and subscribe an oath before the City Register similar to that required of all City officials. (1948 C., Ch. 37, § 12; 1960 C., § 148.050; 1994 C., § 8.04.050.)

8.04.060 License Collector to attend meetings—Records open for inspection.

The License Collector shall personally attend all meetings of the Board. He shall render such assistance and perform such services as the Board may direct.

All of the books and papers in the License Collector's Office shall be open to the inspection of the members of the Board when acting in their official capacity. (1948 C., Ch. 37, § 13; 1960 C., § 148.060; 1994 C., § 8.04.060.)

City Counselor Ops.: 9459, 9601

8.04.070 Preparation and certification of payroll.

Immediately after the final adjournment of the Board in each year, the License Collector shall make out and certify a payroll and state therein the number of days actually served by each member of the Board and the total amount each is entitled to receive as compensation in full for his services, which amount shall be charged to the appropriation for the License Collector's Office. (1948 C., Ch. 37, § 14; 1960 C., § 148.070; 1994 C., § 8.04.070.)

City Counselor Ops.: 9601

Chapter 8.06

BUSINESS LICENSE TAX

Editor's Note:

Ordinance 60643, codified in Chapter 8.07 of the Revised Code of Ordinances, City of St. Louis, imposes a graduated business license tax ranging from one hundred fifty dollars to twenty-five thousand dollars per year, depending on the number of St. Louis employees on all merchants, manufacturers, businesses, avocations, pursuits and callings that are not exempt from the payment of licenses by law.

The passage of the payroll expense tax submitted to the voters under Ordinance 60737, codified in Chapter 5.23 of the Revised Code of Ordinances, City of St. Louis, and the graduated business license tax submitted to the voters under Ordinance 60643 and codified in the aforementioned Chapter 8.07, activates the provisions of Ordinance 60735 which pertains to taxes and fees imposed on businesses in St. Louis, and repeals Ordinance 60343, pertaining to a special employer's tax and the provisions of certain ordinances imposing various business license taxes.

Charter:

Art. I § 1 (24) License taxes

Art. XX License taxes

RSMo:

RSMo 71.610 et seq. (2016) Taxing powers

City Counselor Ops.: 8953, 8966, 8972, 8973, 8974, 8995, 9127, 9430, 9907, 10019, 10312

Cases:

St. Louis City ordinance imposing an earnings tax does not impose a license tax. *Lawyers Assn. of St. Louis v. City of St. Louis,* 294 S.W. 2d 676 (1956).

Although city charter did not list cat kennels among those businesses the city is authorized to tax, the city had statutory authority to impose a license tax on cat kennels. *Nicolai v. City of St. Louis,* 762 S.W. 2d 423 (Mo.banc. 1988).

McQuillin:

26.32 *et seq.* Charges, taxes and fees for licenses

Sections:

8.06.010 License—Application.

8.06.020 License—Payment of taxes.

8.06.030 License—Joint enterprise.

8.06.040 License—Separate.

8.06.050 Operation of more than one business, occupation or profession from same address.

8.06.060 Fees—Proration.

8.06.070 Fees—Payment—Before issuance of license.

8.06.080 Fees—Payment—Delay.

8.06.090 Penalty for delinquent filing.

8.06.100 Time extension.

8.06.110 Receipts.

8.06.120 Treasurer to receive money and copies of receipts.

8.06.130 Records.

8.06.140 Display of license.

8.06.150 Fee where no fee specified.

8.06.160 Doing business without license—False statements.

8.06.170 Sworn statement—Right to verify.

8.06.180 Sworn statement—Not to be made public.

8.06.190 New businesses.

8.06.200 Two dollars per one thousand dollars defined.

8.06.210 Based on annual gross receipts defined.

8.06.220 Based on annual gross commissions, fees, charges or compensation defined.

8.06.230 Appeals.

8.06.240 Board of Tax Appeals—Membership—Terms.

8.06.250 Board of Tax Appeals—Hearings.

8.06.260 Board of Tax Appeals—Decisions.

8.06.270 Board of Tax Appeals—Rules and regulations—Subpoena power.

8.06.280 **Board of Tax Appeals—Time limit—Decision final.**

8.06.290 **Board of Tax Appeals—Continuances**

8.06.300 **License required—Tax example.**

8.06.424 **Coin-operated amusement devices and slot machines.**

8.06.426 **Coin-operated machines.**

8.06.428 **Coin-operated vending machines.**

8.06.452 **Drummer, solicitor, or canvasser.**

8.06.512 **Hotels and motels—Tax—Defined.**

8.06.514 **Hotels and motels—Additional taxes.**

8.06.552 **Magazine subscription agents and salesmen.**

8.06.562 **Merchants or solicitors, transient.**

8.06.608 **Peddlers.**

8.06.010 License—Application.

The License Collector shall prescribe the form of all applications for licenses with the approval of the Comptroller, which shall be similar in form to the license form set forth in Section 8.02.130. All applications for licenses shall be fully completed and signed by the applicant prior to issuance of license. Any person, firm, or corporation who shall file an application with a false or untrue statement contained therein, shall be guilty of a misdemeanor, and upon conviction shall be subject to the punishment provided in Section 8.02.130. In addition to the penalties herein provided, no applicant filing a false or untrue application for a license, shall be eligible for a license for a period of one year from the date of filing the application. All applications for licenses shall contain a statement certifying to the fact that the applicant has paid all personal property taxes, earnings taxes, license taxes, permit and certificate fees due and payable. (1960 C., § 696.010; 1994 C., § 8.06.010; Ord. No. 52030, § 2, 1963.)

8.06.020 License—Payment of taxes.

No license or permit provided for, or required by this chapter or any ordinance of the City shall hereafter be issued by any department, division or office thereof to any person until all taxes, personal taxes, earning taxes, license taxes, permits, certificates and merchants tax due, if any, of such person for the preceding year shall first have been paid. (1960 C., § 696.020; 1994 C., § 8.06.020; Ord. No. 52030, § 3, 1963.)

City Counselor Ops.: 9568, 9649

8.06.030 License—Joint enterprise.

A license may be issued to two or more persons engaged in any joint enterprise, the same as to a single person and for the same charge, except where otherwise specially provided. (1960 C., § 696.030; 1994 C., § 8.06.030; Ord. No. 52030, § 4, 1963.)

8.06.040 License—Separate.

A separate license shall be obtained for each place of business and under each name the business is conducted, operated, maintained, or carried on by every person engaged in any occupation, calling, trade, or enterprise for which a license is required by the ordinance of the City. (1960 C., § 696.040; 1994 C., § 8.06.040; Ord. No. 52030, § 5, 1963.)

8.06.050 Operation of more than one business, occupation or profession from same address.

Whenever any applicant for a license is engaged in more than one occupation or business at the same address, the applicant may, at his option, in lieu of making and paying for separate individual licenses for each avocation, profession, occupation or business, make application and pay for one license for all avocations, professions, occupations or business conducted by the applicant at the location, provided the license fee for all the occupations or businesses required by this chapter is computed on an annual gross receipts, fees, charges, compensations or commissions bases; provided that the not less than minimum license fee for each avocation, profession, occupation or business shall be paid at the rate prescribed in this chapter; provided further, that this section shall apply only to those avocations, professions, occupations and businesses where the license fee is computed on gross annual receipts, fees, charges, compensations or commissions of the occupation or business if a separate license were issued for each such avocation, profession, trade, occupation or business. The license issued in accordance with this section shall specifically enumerate each avocation, business, profession or occupation for which issued. If each business avocation, profession, trade or occupation is conducted in a separate name, separate license shall be secured for each name under which a business or occupation is conducted. (1960 C., § 696.050; 1994 C., § 8.06.050; Ord. No. 52030, § 6, 1963.)

8.06.060 Fees—Proration.

All licenses provided for in this chapter whether based on annual gross receipts fees, charges, compen-

sations or commissions, or upon a yearly license fee, shall expire on June 30 of each year unless otherwise provided herein. Any person, firm, or corporation commencing any new business or new occupation after the first day of July each year shall secure a license for the balance of time remaining in the year. The license year for the purpose of this chapter shall be July 1 each year and ending at 12:00 midnight the following June 30.

The license fee for any avocation, profession, trade, business or occupation commencing after July 1 each year shall be as follows:

A. All businesses or occupations commencing on July 1 up to and including 12:00 midnight December 31 of each year shall be one hundred percent of the minimum license fee set forth in the applicable section of the tax fee schedule for the business or occupation;

B. All businesses or occupations commencing on January 1, each year up to and including 12:00 midnight June 30 of each year shall be fifty percent of the minimum license fee set forth in the applicable section of the tax fee schedule for the business or occupation.

No provisions of this section except for the date of expiration on June 30 of each year shall apply to any license provisions found in this chapter which specifically provide that the license may be issued by the day, month, or week, and any license section in this chapter specifically providing for a license fee per day, week or month shall not be prorated. (1960 C., § 696.060; 1994 C., § 8.06.060; Ord. No. 52030, § 7, 1963.)

8.06.070 Fees—Payment—Before issuance of license.

The License Collector shall not issue any license specified herein until the party applying for the same shall have paid the License Collector the sum of money charged therefor by this chapter. (1960 C., § 696.070; 1994 C., § 8.06.070; Ord. No. 52030, § 8, 1963.)

8.06.080 Fees—Payment—Delay.

The License Collector shall have available in his office all the forms for the applications for the licenses on or before June 1 of each year and the licensee shall secure and file the forms with the License Collector on or before July 15 of each year. The tax payments due under the provisions of this chapter shall be paid and shall become delinquent on the 16 day of July each year.

Whenever any license tax, as fixed by this chapter and due July 1, or any other date as prescribed by this chapter, shall have remained unpaid for sixty days after the time at which the same was due, the amount of the license tax thereafter payable shall be twenty percent greater than the amount of the tax as fixed in appropriate sections of this chapter; provided, that this section shall not be deemed a waiver of the right of any court to impose a penalty for the violation of the ordinances of the City respecting the time when any license tax is due. (1960 C., § 696.080; 1994 C., § 8.06.080; Ord. No. 52783, § 1, 1964; Ord. No. 52030, § 9, 1963.)

City Counselor Ops.: 9606

8.06.090 Penalty for delinquent filing.

Whenever any person, firm or corporation is required by the terms of this chapter to file a statement, application or return with the License Collector or Comptroller of the City as a condition precedent to the granting of a license under the provisions of this chapter and fails to file such statement, application or return with the License Collector or Comptroller of the City within the time required by any provision of this chapter, such person, firm or corporation shall pay to the License Collector a penalty of five percent of the tax due and payable for each month, or fraction thereof, with a maximum of twenty-five percent that such statement, application or return remains delinquent. No license shall be issued by the License Collector until the penalty for delinquent filing of such statement, application or return shall be paid in full. This penalty shall be in addition to the other penalties and forfeitures now provided in this chapter. (1960 C., § 696.085; 1994 C., § 8.06.090; Ord. No. 54982, 1968.)

8.06.100 Time extension.

The License Collector may, before any delinquency and for good cause shown, extended the time of payment for a period not to exceed thirty days. (1960 C., § 696.090; 1994 C., § 8.06.100; Ord. No. 52030, § 10, 1963.)

For extension of time see § 8.02.180

8.06.110 Receipts.

The License Collector shall, upon payment to him of the charge of any license, as provided by this chapter, give a receipt, stating the amount paid, the nature of the license, its duration and to whom issued. A copy of all receipts shall be delivered by the License Collector to the Comptroller. At the time payment is received, the License Collector shall at once issue and deliver to the proper party the license desired, provided the applicants possess all the qualifications required as a prereq-

uisite for the issuance of such licenses. (1960 C., § 696.100; 1994 C., § 8.06.110; Ord. No. 52030, § 11, 1963.)

8.06.120 Treasurer to receive money and copies of receipts.

The Comptroller shall preserve copies of receipts given to the License Collector for charges paid for licenses, and shall immediately charge the Treasurer with the amount of the receipts.

The License Collector shall transmit all license fees received to the Treasurer. (1960 C., § 696.110; 1994 C., § 8.06.120; Ord. No. 52030, § 12, 1963.)

8.06.130 Records.

The License Collector shall keep a book of records as prescribed by the Comptroller containing a complete and perfect record of all licenses issued, showing the nature of the license, the amount paid, its date, expiration, and to whom issued. (1960 C., § 696.120; 1994 C., § 8.06.130; Ord. No. 52030, § 13, 1963.)

8.06.140 Display of license.

All licenses granted hereunder by the City shall be carefully preserved and be displayed in a conspicuous place in the places of business authorized to be conducted by the licenses. (1960 C., § 696.130; 1994 C., § 8.06.140; Ord. No. 52030, § 14, 1963.)

8.06.150 Fee where no fee specified.

Every person conducting any business, industry, or enterprise for which no license is specified in this chapter or in any other section of this Code, or ordinances of the City shall procure a license therefor from the City and shall pay the same license fee as for the nearest related business, industry, or enterprise as determined by the License Collector. (1960 C., § 696.140; 1994 C., § 8.06.150; Ord. No. 52030, § 15, 1963.)

8.06.160 Doing business without license—False statements.

Any person who engages in any business, occupation, pursuit, profession, or trade, or in keeping or maintaining any institution, establishment, article, utility or commodity as enumerated herein without first procuring and paying for a license so to do, unless otherwise exempted by law, or who knowingly makes a false statement in his application for an occupation license as to his annual gross receipts, fees, charges, compensations or commissions, or as to other conditions or factors upon which the license fee is or shall be based, shall be guilty of a misdemeanor, and upon the conviction thereof shall be subject to the penalties prescribed by this Code. (1960 C., § 696.150; 1994 C., § 8.06.160; Ord. No. 52030, § 16, 1963.)

Cases:

> By aiding businessmen in the fraudulent preparation of merchants' and manufacturer's tax returns, defendant demonstrated an intent to defraud the city. *United States v. Sedovic,* 500 F. Supp. 515 (1980).
>
> Although city charter did not list cat kennels among those businesses the city is authorized to tax, the city had statutory authority to impose a license tax on cat kennels. *Nicolai v. City of St. Louis,* 762 S.W. 2d 423 (Mo.banc. 1988).

8.06.170 Sworn statement—Right to verify.

Each applicant for an occupation license, in all cases where the fee or tax for such license is, or shall be, based on "annual gross receipts," or "annual gross fees, charges, compensation or commissions" shall include in his or its application a sworn statement of the true amount of the gross annual receipts, fees, charges, compensations or commissions of his or its profession, avocation, trade, business or occupation for the preceding license year, using the basis for such computation the same figures shown by his or its books and records, by his or its federal and state income tax returns, or by any other records or copies thereof, which truly, correctly and accurately show annual gross receipts, fees, charges, compensation and commission of the applicant for such period; and each applicant for the license, in all cases where the fee for the license is or shall be based on conditions or factors other than annual gross receipts or " annual gross fees, charges, compensations or commissions," shall include in his or its application a true and accurate statement of such conditions or factors upon which the statement is or shall be based.

For the purpose of verifying the accuracy and truthfulness of statements included within any application for a license, when the license is based upon annual gross receipts, or annual gross fees, charges, compensations or commissions, the City, acting through the License Collector, Comptroller, or any authorized deputy or agent of either, shall have the right at all reasonable times during the regular business hours to audit or examine the books and records of the applicant or licensee for the purpose of determining the truthfulness and accuracy of any statements made by the applicant or licensee in an application for a current year's or preceding year's license. All applications accepted by the License Collector shall be accepted subject to audit

and verification. No license shall be issued to any applicant so long as any applicant refuses to permit an audit or examination to be made on current or on all prior years' licenses. Any person, firm or corporation who shall refuse to permit the License Collector or their representatives the right to audit or examine their books and records to verify the accuracy of the application of any license heretofore issued shall forfeit the license. Should any licensee refuse to permit the License Collector or Comptroller or their respective representative to examine and audit the books and records of the licensee, the license of the licensee shall be revoked forthwith by the License Collector. (1960 C., § 696.160; 1994 C., § 8.06.170; Ord. No. 52030, § 17, 1963.)

8.06.180 Sworn statement—Not to be made public.

Every person for whom a license is required herein, the amount of which license is to be computed upon the annual gross receipts, fees, charges, compensations or commissions, of such person, shall furnish the City with a correct statement in writing, subscribed and sworn to before a notary public or License Collector, showing the amount of the gross annual receipts, fees, charges, compensations or commissions received during the preceding tax year, which statement shall not be made public or used by the City or any officer thereof, except for the purpose of establishing a correct basis for fixing and collecting the amount of the license tax herein provided. All books of account showing the amount of the annual gross receipts shall be open to the inspection of the City officials charged with the duty of issuing the license herein provided and collecting the same. (1960 C., § 696.170; 1994 C., § 8.06.180; Ord. No. 52030, § 18, 1963.)

8.06.190 New businesses.

Every person before commencing any business, trade, profession, occupation as herein enumerated shall first procure a license and pay therefore the minimum amount applicable to business, pursuit, occupation or profession, unless otherwise provided by this chapter, and at the next succeeding July 1 shall obtain a new license to be determined from the annual gross receipts, fees, charges, compensations or commissions, as herein provided. (1960 C., § 696.180; 1994 C., § 8.06.190; Ord. No. 52030, § 19, 1963.)

8.06.200 Two dollars per one thousand dollars defined.

The term "two dollars per one thousand dollars" or other similar terms, as used in any section of this chapter, shall be construed to mean that the license fee or tax thereon referred to shall be computed upon the amount of the "annual gross receipts," "annual commission, fees, charges or compensation" of the avocation, trade, business, profession or occupation therein referred to, and the total of the computation shall constitute the amount of the license fee or tax per year for such avocation, business, trade, profession or occupation and each license fee or tax shall be due and payable at the time provided in the chapter, except where a different method is used for computing and a different time determined in some other section of this chapter for the payment of license fees or taxes. (1960 C., § 696.190; 1994 C., § 8.06.200; Ord. No. 55388, § 2(part), 1969; Ord. No. 55152, § 1(part), 1968; Ord. No. 52030, § 20, 1963.)

8.06.210 Based on annual gross receipts defined.

"Based on annual gross receipts" shall mean twelve times the average monthly gross receipts for the time during which any trade, business, profession or occupation in question shall have been conducted, or for the period of one year next preceding the date upon which the required license becomes due, or if past due, and demand is made therefor, then the date of such demand. (1960 C., § 696.190(a); 1994 C., § 8.06.210; Ord. No. 55388, § 2(part), 1969; Ord. No. 52030, § 21(a), 1963.)

8.06.220 Based on annual gross commissions, fees, charges or compensation defined.

"Based on annual gross commissions, fees, charges or compensation" shall mean twelve times the annual average monthly gross commissions, fees, charges or compensation from the business, trade, profession, or occupation in question for the time during which the business shall have been conducted, or for the period of one year next preceding the date upon which the required license becomes due, or if past due and demand is made therefor then the date of such demand. (1960 C., § 696.190(b); 1994 C., § 8.06.220; Ord. No. 55388, § 2(part), 1969; Ord. No. 52030, § 21(b), 1963.)

8.06.230 Appeals.

Appeal procedure in any case where a licensee or applicant for a license deems the application or interpretation of this chapter in a particular case places an undue burden upon interstate commerce or where a licensee or applicant for a license has been aggrieved, by any requirement, decision, order or determination by

the License Collector or any other tax official of the City in the enforcement of the provision of this chapter, the licensee or applicant may file a petition in writing for review to the Board of Tax Appeals in the office of the License Collector on the form prescribed by the Board. The petition for review shall be in writing and shall be accompanied by the sum of fifteen dollars to cover the cost of the hearing. The petition shall set forth in detail the manner in which the license fee constitutes a burden on interstate commerce, or the grounds upon which the applicant or licensee alleges that he is aggrieved by the requirement, decision, order or determination of the License Collector. (1960 C., § 696.200.; 1994 C., § 8.06.230; Ord. No. 52030, § 22, 1963.)

8.06.240 Board of Tax Appeals—Membership—Terms.

There is established a Board of Tax Appeals consisting of three members who shall be voting and taxpaying residents of the City, and be appointed by the Mayor of the City. Upon enactment of Ordinance 52030, the Mayor shall appoint one member to a one-year term, and one member to a two-year term and one member to a three-year term to commence immediately upon appointment. Upon expiration of the initial term, all subsequent appointments shall be made for a term of three years. The Chairman shall be selected by the members of the Board of Appeals. (1960 C., § 696.210; 1994 C., § 8.06.240; Ord. No. 52030, § 23, 1963.)

8.06.250 Board of Tax Appeals—Hearings.

The Chairman shall call a meeting of the Board of Tax Appeals within ten days after the filing of a proper petition for review by a license applicant or any person alleging to be aggrieved by any decision of the License Collector. The Board shall hear all relevant and competent testimony and evidence offered by the petitioner in support of the allegations in the petition, and the Board shall hear all relevant and competent testimony and evidence concerning the matter offered by the License Collector, or any other person. (1960 C., § 696.220; 1994 C., § 8.06.250; Ord. No. 52030, § 24, 1963.)

8.06.260 Board of Tax Appeals—Decisions.

The Board may find that the applicant's license tax does not place an undue burden on interstate commerce, or that the license applicant has not been aggrieved by the requirement, decision, order of determination of the License Collector, and in such cases affirm the decision of the License Collector, or the Board may find the license tax places an undue burden on interstate commerce, or that the license applicant has been aggrieved by the requirement, decision, order or determination of the License Collector, and either modify the decision, order, requirement or interpretation of the collector or may reverse the decision. order, requirement or interpretation of the collector, and shall enter its order, determination or decision, which shall become final. (1960 C., § 696.230; 1994 C., § 8.06.260; Ord. No. 52030, § 25, 1963.)

8.06.270 Board of Tax Appeals—Rules and regulations—Subpoena power.

The Board is authorized and directed to promulgate rules and regulations governing its proceedings, and is empowered to subpoena persons, books, papers and records in carrying out of its duties in this chapter. (1960 C. 696.240; 1994 C., § 8.06.270; Ord. No. 52030, § 26, 1963.)

8.06.280 Board of Tax Appeals—Time limit—Decision final.

The Board shall decide any appeal within ten days after the hearing on appeal. The decision of the Board shall be final, subject to review under the provisions of RSMo Ch. 526 (1959). (1960 C., § 696.250; 1994 C., § 8.06.280; Ord. No. 52030, § 27, 1963.)

8.06.290 Board of Tax Appeals—Continuances

The Chairman of the Board, may continue any appeal to a day certain, but, in any event, appeals shall be heard by the Board within sixty days after the filing of the petition for review. (1960 C., § 696.260; 1994 C., § 8.06.290; Ord. No. 52030, § 28, 1963.)

8.06.300 License required—Tax example.

Every corporation, company, association, joint stock company or association, partnership and person, their lessees, trustees, or receivers appointed by any court whatsoever, engaged in any business, occupation, pursuit, profession, or trade, or in the keeping or maintaining of any institution, establishment, article, utility, or commodity, in this chapter, shall procure and pay for a license therefor from the City, and the license fees shall be in the respective amounts set out in this chapter (except as otherwise provided in this chapter).

Whenever in this chapter and in the succeeding sections of this schedule the terms "based on annual gross receipts" or "based on annual gross commissions, fees, charges, or compensation," are used in this chap-

ter, the license tax fee for business, avocations, professions, trades, or occupations, except as otherwise specifically provided in this chapter, shall be determined by multiplying the number of thousands of dollars or fractions thereof of "annual gross receipts" or "annual gross commissions, fees, charges or compensation" by the rate of two dollars.

EXAMPLE

Firm "A" with "annual gross receipts" or "annual gross commissions, fees, charges or compensation" of $100,250.00 will pay $2.00 per $1,000.00 or $200.00 ($100,250.00 ÷ $1,000.00 x $2.00). (1960 C., § 696.270; 1994 C., § 8.06.300; Ord. No. 55388, § 3, 1969; Ord. No. 55152, § 1(part), 1968; Ord. No. 52030, § 29, 1963.)

8.06.424 Coin-operated amusement devices and slot machines.

Coin-operated amusement devices and slot machines include, but are not limited to, coin-operated photograph, juke boxes, pinball machines, coin-operated radios or television sets, or any other coin-operated amusement devices and slot machines. The annual license fee per machine device shall be ten dollars.

Upon payment of the annual license tax as provided herein, the License Collector shall issue a license sticker emblem, which shall bear the words "Coin-Operated Amusement Device" with the cost thereof imprinted thereon and the numerals designating the year for which the license is issued and a number identical with the number of the license. One side of the license shall be of such strength and composition that the emblem cannot be removed from the coin-operated amusement device without being mutilated or destroyed; it shall be the duty of the licensee to permanently affix the license emblem to the device for which the same was issued, and the emblem shall not be used for any such other machine or device. It shall be unlawful for any person, firm, or corporation to operate or expose for operation any such device within the City without first obtaining and displaying on the device a license emblem for the current year thereon.

The License Collector and any of his duly authorized representatives are authorized to seize and impound any coin-operated amusement device or slot machine found in the City which is being operated or exposed for operation in violation of the provisions of this section. The License Collector and any of his duly authorized representatives are required to leave a receipt that describes any and all machines or devices seized and that receipt shall bear the signature of the person seizing the machine or device along with the address and telephone number of the License Collector's Office. That in the event a machine is seized on the street, alley, or that no one claims possession or custody thereof, the License Collector or any of his duly authorized representatives are required to post within ten feet of where the machine is seized a notice that the machine has been seized, signed by the person seizing the machine or device along with the address and telephone number of the License Collector's Office. Such coin-operated amusement devices and slot machines so seized may be held by the License Collector for a period of thirty days and if not claimed by the owner or person in whose possession or custody such machine or device was found within that time the same shall be sold thereafter at a public auction, notice of the sale to be published in the official publication of the City at least ten days prior to the date of sale and from the proceeds of the sale shall collect the tax due thereon plus a sum of twenty-five dollars as a civil penalty in lieu of the sum assessed in Section 8.06.080, together with the cost of seizing and storing the machines. The balance from the sale shall be paid over to the Comptroller to be kept in a special account and to be paid over to the owner or person in whose possession or custody such machine or device was found if the person makes a claim within twelve months from the date the machine was seized by the License Collector. All money held over twelve months is to be paid into the City general revenue fund.

Seizure and sale shall not be deemed to relieve any person from any other penalty for violation of Sections 8.06.426—8.06.428.

No seized coin-operated amusement device or slot machine shall be released until the owner or the person in whose possession or custody such machine or device was found has paid to the License Collector the license fee due and civil penalty of twenty-five dollars, together with the cost of seizing and storing the machines.

Any person, firm, or corporation violating the provisions of this section, in addition to the other penalties herein presented, shall be punished upon conviction thereof by a fine of not less than fifty dollars nor more than five hundred dollars or by imprisonment for not less than ten days nor more than ninety days, or by both fine and imprisonment. Each day's violation shall con-

stitute a separate offense. (1960 C., § 696.324; 1994 C., § 8.06.424; Ord. No. 57010, § 1(part), 1975; Ord. No. 53585, §§ 1, 3, 1965; Ord. No. 52085, § 1(part), 1963; Ord. No. 52030, § 29-58, 1963.)

City Counselor Ops.: 9250, 9908, 10428

Cases:

Ordinance levying a license tax of a flat sum on automatic slot machines used for delivering goods, wares or merchandise was valid. *Edmonds v. City of St. Louis,* 156 S.W. 2d 619 (1941).

Defendant, charged with permitting the operation of a coin-operated amusement device without a license, failed to show that the ordinance violated the commerce clause of the U.S. Constitution. *City of St. Louis v. Streckfus,* 505 S.W. 2d 70 (1974).

8.06.426 Coin-operated machines.

Any coin-operated machines or slot or slug devices for the purpose of showing a person's weight, providing storage for articles, lockers, and in taking photographs of persons shall have an annual license fee per machine or device:

One cent but less than five cents, one dollar.

Five cents but less than ten cents, three dollars.

Ten cents or more, ten dollars.

Upon payment of the annual license tax as herein provided, the License Collector shall issue a license sticker emblem which shall bear the words "Coin-Operated Service Device," with the cost thereof printed thereon, and the numerals designating the year for which the license is issued and a number identical with the number of the license. One side of the license shall be of such strength and composition that the emblem cannot be removed from the coin-operated machine or device without being mutilated or destroyed; it shall be the duty of the licensee to permanently affix the license emblem to the device for which the same was issued, and the emblem shall not be used for any other device. It shall be unlawful for any person, firm, or corporation to operate or expose for operation any such device without first obtaining and displaying on the device a license emblem for the current year thereon. (1960 C., § 696.325(b); 1994 C., § 8.06.426; Ord. No. 57010, § 1(part), 1975; Ord. No. 53584, § 1(part), 1965; Ord. No. 52085, § 1(part), 1963; Ord. No. 52030, § 29-59(b), 1963.)

8.06.428 Coin-operated vending machines.

Any coin-operated vending machines or any coin-operated devices for the sale of goods, wares, or merchandise, cigarettes, cigars, candy, food, gum, and beverages shall have an annual license fee per machine or device:

One cent but less than five cents, one dollar.

Five cents but less than ten cents, three dollars.

Ten cents or more, ten dollars.

Upon payment of the annual license tax, the License Collector shall issue a license sticker emblem which shall bear the words "Coin-Operated Vending Device," with the cost thereof imprinted thereon, and the numerals designating the year for which the license is issued and a number identical with the number of the license. One side of the license shall be of such strength and composition that the emblem cannot be removed from the coin-operated machine or device without being mutilated or destroyed. It shall be the duty of the licensee to permanently affix the license emblem to the device for which the same was issued, and the emblem shall not be used for any other device. It is unlawful for any person, firm or corporation to operate or expose for operation any such device within the City without first obtaining and displaying on the device a license emblem for the current year thereon. (1960 C., § 696.325(a); 1994 C., § 8.06.428; Ord. No. 57010, § 1(part), 1975; Ord. No. 53584, § 1(part), 1965; Ord. No. 52085, § 1(part), 1963; Ord. No. 52030, § 29-59(a), 1963.)

8.06.452 Drummer, solicitor, or canvasser.

"Drummer, solicitor, or canvasser" means any individual, whether a resident of this City or not, traveling by foot, wagon, automobile, motor truck, any other type of conveyance, or calls made by phone, from place to place, or from street to street, taking or attempting to take orders for sale of goods, wares, or merchandise, personal property of any nature whatsoever for future delivery, or for service to be furnished or performed in the future, whether or not such an individual has, carries, or exposes for sale a sample of the subject of such sale, or whether he is collecting for advance payments on such sales or not, within this City. The license fee for drummers, solicitors, or canvassers shall be: One dollar per day, ten dollars per month, fifteen dollars per year.

All applicants shall file an application setting forth the name and the home address of the applicant for the last five years, a description of the products to be sold, the name of the applicant's principal, if any, the duration of time of license. In addition to the application, the applicant for a license shall give bond in the sum of

one thousand dollars with an acceptable surety conditioned upon the applicant's complying fully with all the laws and ordinances of the City and the statutes of the state regulating and concerning the business of drummer, solicitor, or canvasser, and guaranteeing to any resident of the City that all money paid will be accounted for and applied, according to the representations made by the solicitor, drummer, or canvasser, and guaranteeing to any citizen of this City doing business with said solicitor, drummer, or canvasser that the property purchased will be delivered according to the representation of the solicitor, canvasser or drummer. Action on the bond may be brought in the name of the City to the use or benefit of the aggrieved person. Failure to comply with the provisions of this section shall cause the bond required by the terms of this section to be forfeited to satisfy any amount due the City, or its officers, under the terms of this section or any other ordinance of the City.

Each drummer, solicitor or canvasser as herein defined shall upon the payment of the license fee receive a certificate of license which shall be inserted into a badge provided by the License Collector, which badge will be carried on the person of each drummer, solicitor or canvasser at all times when carrying on such business or occupation and shall be displayed whenever required to do so by a police officer or tax official of the City. The certificate of license shall set forth the name of the drummer, solicitor or canvasser, his address, his employer and employers' address, the license number, the time for which issued and any other matter prescribed by the License Collector.

The license of any drummer, solicitor or canvasser employed by any person, firm or corporation may be transferred to another employee of such person, firm or corporation by the surrender of the license to the License Collector and the filing therewith an application to transfer the license, accompanied by a fee of one dollar to cover the cost of transfer. Should the employee possess all the qualifications for a drummer, solicitor or canvasser, including the posting of the bond, the License Collector may order the transfer of the license from one employee to another employee of such person, firm or corporation.

Any person, firm or corporation licensed to do business in this City as a merchant or a manufacturer pursuant to the provisions of this Code, and employing person engaged in the occupation of a solicitor, drummer or canvasser with the City, and who secure for their employees licenses from this City to engage in such occupations shall receive a credit of the amount so paid for the license on the occupational portion of the license tax so paid on the ensuing years merchants or manufacturers license tax return. However, the credit shall in no event be permitted against the ad valorem tangible personal property tax portion of the tax. In order to receive credit for such taxes, the merchant or manufacturer shall surrender with the license return the license or licenses of the solicitor, drummer, or canvasser to the License Collector with the receipt given by the License Collector for the license.

None of the license fees provided by this section shall be applied as to occasion an undue burden on interstate commerce, it being the intent that this section is a regulatory measure to protect the safety and welfare of the residents of the City. (1960 C., § 696.336; 1994 C., § 8.06.452; Ord. No. 52030, § 29-70, 1963.)

8.06.512 Hotels and motels—Tax—Defined.

There is levied a tax of two percent of the gross daily rental receipts due from or paid by transient guests, in addition to the tax levied on hotels and motels in Section 25.36.130.

Definitions for purposes of this section are as follows:

A. "Transient guest" shall be a person who occupies a room in a hotel or motel for thirty-one days or less.

B. "Hotel or motel" shall mean any structure or building which contains rooms furnished for the accommodations or lodging of guests, with or without meals being so provided, and kept, used, maintained, advertised, or held out to the public as a place where sleeping accommodations are furnished for pay or compensation to transient guests or permanent guests.

It is the duty of every person, firm or corporation engaged in the business of operating a hotel or motel to file quarterly on or before July 31, October 31, January 31 and April 30 of each year, with the Comptroller of the City. A sworn statement of gross daily receipts received from or due from transient guests from the operation of the hotel or motel for the three-month quarterly period preceding the filing of the statement. At the time of filing the statement the Comptroller shall examine the accuracy of the statement and shall certify to the License Collector of the City the amount of tax due by such person, firm or corporation engaged in the business herein described. The License Collector

shall thereupon notify the person, firm or corporation filing the statement of the certification thereof, and it shall be the duty of the person, firm or corporation to pay the License Collector an amount equal to two percent of the daily gross receipts, as shown by the statement so filed and certified. (1960 C., § 696.367; 1994 C., § 8.06.512; Ord. No. 55791, § 1, 1971; Ord. No. 52030, § 29-108, 1963.)

City Counselor Ops.: 9575, 10164

Editor's Note:

The imposition of this tax is suspended during the collection of the tax imposed pursuant to RSMo 67.619.5. The room tax imposed by Ordinance 60449 was repealed. See Ordinance 62802. Also see RSMo 67.657 for hotel/motel tax.

8.06.514 Hotels and motels—Additional taxes.

In addition to the taxes levied on hotels and motels pursuant to Sections 8.06.514 and 25.36.130, there is levied an additional tax of one percent of the gross daily rental receipts due from or paid by transient guests of hotels and motels. The procedures, definitions, duties, obligations and penalties imposed by this chapter, insofar as they are applicable to hotels and motels are adopted.

No license for the operation of a hotel or motel shall be issued by the License Collector for the operation of a hotel or motel in the City unless and until the taxes levied pursuant to Sections 8.06.512, 25.36.130, and this section have been fully paid. The person, firm, or corporation operating a hotel or motel within the City of St. Louis shall file a sworn statement of the gross daily rental receipts and pay the tax due thereon required by Section 8.06.512 of the Revised Code of the City of St. Louis.

The taxes levied and collected pursuant to Section 8.06.512 and this section shall be distributed as provided in Chapter 5.36. (1960 C., § 696.367(a); 1994 C., § 8.06.514; Ord. No. 56263, § 2, 1972; Ord. No. 54944, § 5, 1968.)

Editor's Note:

The imposition of this tax is suspended during the collection of the tax imposed pursuant to RSMo 67.619.5. The room tax imposed by Ordinance 60449 was repealed. See Ordinance 62802. Also see RSMo 67.657 for hotel/motel tax.

8.06.552 Magazine subscription agents and salesmen.

For magazine subscription agents and salesmen see drummer, solicitor or canvasser, see Section 8.06.452. (1960 C., § 696.385; 1994 C., § 8.06.552; Ord. No. 52030, § 29-129, 1963.)

8.06.562 Merchants or solicitors, transient.

See drummer, solicitor or canvasser, hawkers and peddlers, Section 8.06.452. (1960 C., § 696.389; 1994 C., § 8.06.562; Ord. No. 52030, § 29-133, 1963.)

8.06.608 Peddlers.

See hawkers and peddlers, Section 8.06.504. (1960 C., § 696.411; 1994 C., § 8.06.608; Ord. No. 52030, § 29-157, 1963.)

Chapter 8.07

GRADUATED BUSINESS LICENSE TAX

Sections:

8.07.010 Imposed.
8.07.015 Public Safety Trust Fund.
8.07.020 Definition.
8.07.030 Applicability.
8.07.040 Business license application—Tax payment—When.
8.07.041 Specific organizations exempted.
8.07.042 Home occupations—Registration in lieu of tax.
8.07.050 Current applicable provisions to remain in effect.
8.07.060 Administration and enforcement.
8.07.070 Severability.

8.07.010 Imposed.

There is hereby imposed a graduated business license tax on all merchants, manufacturers, businesses, avocations, pursuits and callings that are not exempt from the payment of licenses by law, except those merchants, manufacturers, businesses, avocations, pursuits and callings listed in Section 8.07.030 of this chapter. The graduated business license tax shall be calculated and based on the licensee's St. Louis employees as defined in Section 8.07.020 of this chapter and be payable prior to issuance of a business license as follows:

St. Louis Employees	Graduated Business License Tax
2 or fewer	$200.00
3—5	$325.00
6—10	$675.00
11—20	$1,500.00
21—30	$2,250.00
31—40	$3,000.00
41—50	$4,500.00

St. Louis Employees	Graduated Business License Tax
51—75	$7,500.00
76—100	$11,250.00
101—150	$15,000.00
151—200	$20,250.00
201—300	$25,500.00
301—400	$30,000.00
401—500	$34,500.00
501 or more	$37,500.00

(1994 C., § 8.07.010; Ord. No. 67091, § 5, 2006; Ord. No. 60643, § 1, 1988.)

Charitable school was exempt from City license tax under the provisions of RSMo 71.620.1 (1986). *David Ranken, Jr. Tech. Inst. v. Boykins,* 816 S.W. 2d 189 (Mo. banc. 1991).

8.07.015 Public Safety Trust Fund.

A. There is hereby created a special trust fund, to be known as the Public Safety Trust Fund. The Public Safety Trust Fund shall consist of three (3) accounts, namely, an Enhanced Police Services Account, an Enhanced Criminal Prosecution Account, and an Enhanced Problem Properties and Nuisance Crime Prosecution Account. All revenue derived from the increase in the graduated business license tax pursuant to Ordinance 67091 and all interest on such revenue shall be deposited into such Public Safety Trust Fund and such Accounts within said Fund allocated and credited upon receipt as follows: 75% to the Enhanced Police Services Account, 15% to the Enhanced Criminal Prosecution Account, and 10% to the Enhanced Problem Properties and Nuisance Crime Prosecution Account. Money in the Enhanced Police Services Account shall be used only to pay for the cost of hiring and retaining additional police officers assigned to expand the Most Violent Offenders Program and the cost of equipment, facilities and services directly associated with the hiring and retaining of such police officers, for the cost of hiring and retaining additional police officers assigned to address nuisance crimes and problem properties and the cost of equipment, facilities and services directly associated with the hiring and retaining of such police officers, for the cost of hiring and retaining additional police officers assigned to address truancy and curfew violations and the cost of equipment, facilities and services directly associated with the hiring and retaining of such police officers, for the cost of hiring and retaining additional investigators assigned to the Sex Crimes Unit and the cost of equipment, facilities and services directly associated with the hiring and retaining of such investigators, for the cost of adding and retaining additional employees, equipment and software in the Crime Analysis Unit, for the cost of hiring and retaining an additional advocate for victims of sexual assault and sexual abuse and the cost of equipment, facilities and services directly associated with the hiring and retaining of such advocate, and for the cost of hiring and retaining an additional criminologist assigned to the processing of rape kits and the cost of equipment, facilities and services directly associated with the hiring and retaining of such criminologist. Money in the Enhanced Criminal Prosecution Account shall be used only to pay for the cost of hiring and retaining additional attorneys, paralegals, associated support staff and investigators assigned to prosecute repeat and violent offenders and the cost of equipment, facilities and services directly associated with the hiring and retaining of such attorneys, paralegals, associated support staff and investigators. Money in the Enhanced Problem Properties and Nuisance Crime Prosecution Account shall be used only to pay for the cost of hiring and retaining additional attorneys, paralegals, and investigators assigned to prosecute problem and nuisance property offenders and the cost of equipment, facilities and services directly associated with the hiring and retaining of such attorneys, paralegals and investigators.

B. All revenue received by the City from the increase in the graduated business license tax authorized by Ordinance 67091 shall be deposited in the Public Safety Trust Fund. No money credited and allocated to any account within the Public Safety Trust Fund shall be transferred to any other fund nor appropriated, expended, used or encumbered for any purpose other than for the purposes set forth in Subsection A of this section. All monies from any account within the Public Safety Trust Fund shall be expended only by appropriating ordinances. There shall be an annual review by the Ways and Means Committee of the Board of Aldermen to monitor the distribution of all monies in the Public Safety Trust Fund. (1994 C., § 8.07.015; Ord. No. 67193, §§ 1, 2, 2006.)

8.07.020 Definition.

As used herein, the term "St. Louis employee" means either: a sole proprietor of, or partners or joint venturers conducting an activity for which a graduated business license is required by this chapter, or an individual performing work, for remuneration, who is em-

ployed for 1,920 hours or more in any calendar year preceding any year in which a graduated business license is required to be obtained; or a full-time equivalent of a St. Louis employee. A "full-time equivalent of a St. Louis employee" means each group of two or more part-time employees who in the aggregate are employed by the same employer for 1,920 hours in any calendar year preceding any year in which a graduated business license is required to be obtained. If work or service of employees is performed partly within and partly without the City, the number of hours any employee works within the City shall be considered and utilized in computation of St. Louis employees. (1994 C., § 8.07.020; Ord. No. 60643, § 2, 1988.)

History:

Submission Ordinance 66976

Amendment Substance: to increase tax

Voter Rejection: April 4, 2006

8.07.030 Applicability.

This chapter and the tax imposed hereunder, subject to the approval of the qualified voters, by this chapter are not applicable to, are not intended to alter, amend, or repeal, and shall not be construed at any time, for any purpose, as altering, amending or repealing the license taxes or fees presently imposed on: coin-operated amusement devices, slot machines, machines and vending machines, machines licensed pursuant to Section 8.06.428, inclusive of the Revised Code of the City of St. Louis, (hereinafter "Code"); hawkers and peddlers licensed pursuant to Section 8.06.504, Code; hotels; those businesses subject to the amusement tax license on entertainment, athletic or sporting events pursuant to Chapter 8.08 and/or Sections 8.100.460 through 8.100.580, inclusive, Code; itinerant vendors and itinerant wholesale produce vendors licensed pursuant to Chapter 8.48, Code, restaurants licensed pursuant to Chapter 11.42, Code; auctioneers licensed pursuant to Chapter 8.18, Code, shows, exhibitions and roundabouts licensed pursuant to Sections 8.100.020 through 8.100.060, inclusive, Code; drummer, solicitors or canvassers licensed pursuant to Section 8.06.452, Code; magazine subscription agents or salesmen licensed pursuant to Section 8.06.552, Code; merchant or solicitor, transient, licensed pursuant to Section 8.06.562, Code; public garages licensed pursuant to Chapter 8.76, Code; taxicabs licensed pursuant to Chapter 8.98, Code; junk peddlers licensed pursuant to Chapter 8.82, Code; junk merchants licensed pursuant to Chapter 8.82, Code; electrical companies licensed pursuant to Chapter 23.30, Code; telephone and telegraph companies licensed pursuant to Chapter 23.32 or 23.34, Code, gas companies licensed pursuant to Chapter 23.36, Code; contractors licensed pursuant to Chapter 8.12, Code; dealers or wholesalers engaged in the businesses of selling cigarettes or offering or displaying the same for sale taxed pursuant to Chapter 8.10, Code; manufacturers, wholesalers, distributors and retailers of intoxicating liquor, intoxicating malt liquor or nonintoxicating beer licensed pursuant to Chapter 14.24, 14.28, or 14.32, Code; bowling alleys, amusement places, places of entertainment or dance ballrooms licensed to sell intoxicating liquor pursuant to Chapters 14.44, 14.46 or 14.48, Code. (1994 C., § 8.07.030; Ord. No. 60643, § 3, 1988.)

8.07.040 Business license application—Tax payment—When.

All businesses subject to the graduated business license tax shall file a business license application form upon forms prepared by the License Collector by July 1, 1992 and pay the applicable graduated business license tax by July 31, 1992. Such license shall be valid for a license tax period of July 1, 1992 through May 31, 1993. The tax due for this time period shall be computed on a prorated basis on the number of full months in said period for which the license will be in effect.

Thereafter, all business subject to the graduated business license tax shall file a business license application upon forms prepared by the License Collector and pay the applicable graduated business license tax by every subsequent May 31. Licenses issued under this paragraph shall be valid for a license tax year of June 1 through May 31 of the following year.

Any business that fails to make application for the graduated business tax when due or fails to pay the tax when due shall be subject to the same penalties, interest and fines as other businesses under this Title 8 of the Revised Code of the City of St. Louis. (1994 C., § 8.07.040; Ord. No. 63082, § 1, 1994; Ord. No. 62578, § 2, 1992; Ord. No. 60643, § 8, 1988.)

8.07.041 Specific organizations exempted.

The following are hereby exempted from the graduated business license tax imposed by Ordinance 60643, approved January 8, 1988:

1. Those religious, educational or charitable organizations and undertakings exempted under the provi-

sions of Section 8.08.050 of the Revised Code of the City of St. Louis from the taxes imposed by Chapter 8.08 of said Revised Code;

2. Any religious, educational or charitable organization or undertaking where the sole purpose of such religious, educational or charitable organization or undertaking is the production, promotion or fostering of the visual, literary or performing arts. In determining whether such a sole purpose exists, the License Collector may require the production of all relevant documents, take testimony under oath to be administered by him and inspect premises and arrangements to be used. The decision of the License Collector shall be approved by the Comptroller. Upon granting any such exemption as herein provided, the License Collector shall issue a license to the religious, educational or charitable applicant plainly evidencing the exemption. Provided further, where a tax exemption is granted and the License Collector at any time thereafter discovers that a sole true purpose of producing, promoting or fostering the visual, literary or performing arts was substantially nonexistent, he shall upon the Comptroller's approval revoke the exemption and levy the tax owing with interest at the legal rate. In such cases, the tax shall be paid forthwith; and in making such determination the License Collector shall have the same powers as is provided for determining questions of exemptions initially;

3. Any person or entity rendering entertainment, artistic, theatrical or athletic services or performances to such organization or undertakings exempted under the provisions of Subsection A or B above, with respect to such services or performances; and

4. Visual and literary artists, entertainers, speakers, performing artists, athletes, entertainment, artistic and theatrical acts, and athletic teams displaying their art, appearing, or having their work published solely in compliance with arrangements with promoters, booking agents, managers or publishers subject to Section 5.22.150 of said Revised Code; and

5. Farmers, which for purposes of this chapter shall mean those individuals or organizations who cultivate land or crops, raise animals, or keep bees, and offer said agricultural products or products produced therefrom for sale directly to consumers solely at farmers' markets. As used in this chapter, the term "farmers' market" shall mean: a market that is privately or publicly owned or operated at which space is rented, leased or otherwise provided to farmers to sell their agricultural products and products produced therefrom directly to consumers. (1994 C., § 8.07.041; Ord. No. 70862, § 1, 12-3-2018; Ord. No. 62517, § 1, 1992.)

8.07.042 Home occupations—Registration in lieu of tax.

A. Any person or taxpayer operating a home occupation that is permitted by and meets the requirements of the Zoning Code of the City of St. Louis may apply to the License Collector for designation and registration as a home occupation operator. Such designation and registration shall be granted for a one-year period and be renewable each year on an annual basis if and only if the person or payer meets the following conditions: (1) The application is accompanied by: (a) a copy of a home occupation waiver issued by the Zoning Administrator, (b) a copy of the E-234 Business Earnings Tax Form filed by the taxpayer with the Collector of Revenue for the preceding calendar year, (c) a written statement of clearance certifying that no current or past earnings and/or personal property taxes are due and payable to the City; and (2) said Form E-234 demonstrates that the taxpayer's gross earnings attributable to such home occupation for said preceding calendar year are less than one hundred thousand dollars ($100,000.00); provided, however, that taxpayers who were not required to file Form E-234 for the preceding calendar year due to the fact that their business did not then exist shall be eligible for designation as home occupation operators without filing the E-234 form for that calendar year only.

B. Upon designation as a home occupation operator, the operator shall pay, in lieu of the graduated business license tax, a home occupation registration fee in the amount of twenty-five dollars ($25.00). Upon payment of the registration fee, the operator shall be issued a certificate of registration by the License Collector that shall be maintained at the home occupation premises.

C. Payment of the registration fee is due when the graduated business license tax is due.

D. The License Collector is empowered to issue, adopt, promulgate and enforce forms, rules and regulations relating to any matter pertaining administration and enforcement of this section. (1994 C., § 8.07.042; Ord. No. 70150, § 3, 11-24-2015; Ord. No. 62617, §§ 1—4, 1992.)

8.07.050 Current applicable provisions to remain in effect.

Except as specifically herein provided, all present City ordinance and City Code provisions not inconsis-

tent with this chapter providing for the licensing of businesses, and enforcement and administration of business licensing, shall be and remain in full force and effect. (1994 C., § 8.07.050; Ord. No. 60643, § 9, 1988.)

8.07.060 Administration and enforcement.

This chapter shall be administered and enforced by the License Collector of the City, who is authorized to devise forms, regulations and procedures consistent with this chapter, for such administration and enforcement. (1994 C., § 8.07.060; Ord. No. 60643, § 10, 1988.)

8.07.070 Severability.

This chapter shall not affect or impair any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before the effective date of the tax provided for by this chapter; but every act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purpose as if the prior law had remained in full force and effect. No offense committed and no liability, penalty or forfeiture either civilly or criminally incurred prior to the effective date of the tax provided for by this chapter, shall be discharged or affected by this chapter; but prosecutions and suits for such offenses, liabilities, penalties or forfeitures shall be instituted and proceeded with in all respects as if the tax provided for by this chapter has not taken effect. (1994 C., § 8.07.070; Ord. No. 60643, § 11, 1988.)

Chapter 8.08

ENTERTAINMENT LICENSE TAX

Sections:

8.08.010 Imposed.

8.08.015 Boxing matches, shows, or exhibitions—Temporary suspension of tax.

8.08.020 Computation—Issuance of license.

8.08.030 New businesses.

8.08.040 Single instance or limited time businesses.

8.08.050 Religious, educational or charitable purposes.

8.08.060 Application.

8.08.070 Other tax liability.

8.08.080 Rules and regulations.

8.08.090 Intent.

8.08.100 Penalty for violation of Sections 8.08.010—8.08.090.

8.08.110 Acts in permanent proscenium theaters—Tax levied.

8.08.120 Acts in permanent proscenium theaters—License application.

8.08.130 Acts in permanent proscenium theaters—Penalty for violation.

8.08.140 Motion picture shows—Tax imposed.

8.08.150 Motion picture shows—Penalty for violation.

8.08.010 Imposed.

Any person or persons, partnership of whatever form, or corporation in the business of admitting persons or groups upon payment of an admission charge to a pleasure ride or cruise, wrestling match, show or exhibition, boxing match, show or exhibition, sporting event, including but not restricted to baseball, football, rugby, soccer, hockey, basketball, rodeo, and other like entertainment presentation, are taxed upon the amount of gross receipts derived from such admission charges at the rate of five percent of the gross receipts, payable on quarterly calendar intervals; where the business is conducted for a period of time less than the licensing period hereinafter, the same rate of tax shall be levied and the amount thereof shall be paid for the period of time the business has been conducted.

Notwithstanding the foregoing paragraph, any person or persons, partnership of whatever form, or corporation in the business of admitting persons or groups upon payment of an admission charge to a pleasure ride or cruise, wrestling match, show or exhibition, boxing match, show or exhibition, sporting event, including but not restricted to baseball, football, rugby, soccer, hockey, basketball, rodeo, and other like entertainment presentation, and who or which: (1) has been designated the developer or redeveloper or co-developer or co-redeveloper (a "Redeveloper") pursuant to a redevelopment plan approved by the City by ordinance and a redevelopment agreement ("Redevelopment Agreement") approved by the LCRA, for the construction or substantial rehabilitation of a new or redeveloped sports arena, sports stadium, field house, ballpark or other type of sports or recreation facility to be constructed or rehabilitated after the effective date of the ordinance codified in this section ("Recreation Facility") and for the development of a substantial mixed

use development adjacent to the Recreation Facility which may include, but is not limited to, housing, offices, museums, entertainment venues, retail stores, restaurants or other similar facilities, all of which such facilities, including the Recreation Facility, are or will be located within a blighted and/or insanitary area, as determined by the City by ordinance, or (2) is the primary tenant, occupant or operator of the Recreation Facility, or has been designated as such pursuant to the Redevelopment Agreement ("Tenant"), or (3) is an Affiliate (as hereinafter defined) of such Redeveloper or Tenant, shall be taxed upon the amount of gross receipts derived from such admission charges at such Recreation Facility during the term of the Redevelopment Agreement at the rate corresponding to the estimated total amount of Private Investment for the construction or rehabilitation of the Recreation Facility as set forth in the Redevelopment Agreement in accordance with the following tax rate schedule:

Amount of Estimated Private Investment in the Recreation Facility	Tax Rate
less than $50,000,000.00	5% of gross receipts
$50,000,000.00—$99,999,999.00	4% of gross receipts
$100,000,000.00—$199,999,999.00	2% of gross receipts
$200,000,000.00 and above	0% of gross receipts

The tax imposed pursuant to this paragraph shall be payable on quarterly calendar intervals. Upon expiration or termination of the Redevelopment Agreement, the Redeveloper, Affiliate or Tenant shall be subject to the same rate of tax as set forth in the preceding paragraph of this Section 8.08.010. For purposes of this section, "Private Investment" shall mean the total amount to be provided by the Redeveloper, Affiliate, Tenant or any other private party for the construction or rehabilitation of the Recreation Facility as calculated pursuant to the terms of the Redevelopment Agreement. For purposes of this section, "Affiliate" shall mean any corporation, partnership, sole proprietorship or other person or entity that directly or indirectly through one or more intermediaries' controls, is controlled by or is under common control with the Redeveloper.

Further, notwithstanding the foregoing paragraphs, any person or persons, partnership of whatever form, or corporation in the business of admitting persons or groups upon payment of an admission charge to a pleasure ride or cruise, wrestling match, show or exhibition, boxing match, show or exhibition, sporting event, including but not restricted to baseball, football, rugby, soccer, hockey, basketball, rodeo, and other like entertainment presentation, and who or which is an owner, primary tenant, occupant or operator, or Affiliate of a sports arena, sports stadium, field house, ballpark or other type of sports or recreation facility ("Contiguous Recreation Facility"), and such Contiguous Recreation Facility is contiguous to an historic theatre, opera house or concert hall ("Historic Entertainment Facility"), which is the subject matter of a redevelopment plan approved by the City by ordinance and a Redevelopment Agreement approved by the LCRA after the effective date of the ordinance codified in this section, for the historic rehabilitation of the Historic Entertainment Facility to be rehabilitated after the effective date of the ordinance codified in this section, shall be taxed upon the amount of gross receipts derived from such admission charges at the Contiguous Recreation Facility, during the time the Redevelopment Agreement with respect to the Historic Entertainment Facility is in effect, at the rate corresponding to the estimated total amount of Private Investment for the historic rehabilitation of the Historic Entertainment Facility as set forth in the Redevelopment Agreement of the Historic Entertainment Facility in accordance with the following tax rate schedule:

Amount of Estimated Private Investment in the Historic Entertainment Facility	Tax Rate
less than $50,000,000.00	5% of gross receipts
$50,000,000.00 and above	0% of gross receipts

The tax imposed pursuant to this paragraph shall be payable on quarterly calendar intervals. Upon expiration or termination of the Redevelopment Agreement of the Historic Entertainment Facility for any reason, the owner, primary tenant, occupant or operator, or Affiliate of the Contiguous Recreation Facility shall be subject to the same rate of tax as set forth in the first paragraph of this Section 8.08.010. For purposes of this paragraph, "Private Investment" shall mean the total amount to be provided by the owner, primary tenant, occupant or operator, or Affiliate, or any other private party for the construction or historic rehabilitation of the Historic Entertainment Facility as calculated pursuant to the terms of the Redevelopment Agreement for the Historic Entertainment Facility.

Further, notwithstanding the foregoing paragraphs, any person or persons, partnership of whatever form, or corporation in the business of admitting persons or groups upon payment of an admission charge to a pleasure ride or cruise, wrestling match, show or exhibition, boxing match, show or exhibition, sporting event, including but not restricted to baseball, football, rugby, soccer, hockey, basketball, rodeo, and other like entertainment presentation, and who or which is an owner, primary tenant, occupant or operator, or Affiliate of a multi-purpose stadium designed to host professional soccer and amateur sports, concerts, and community events ("Stadium Facility") and such Stadium Facility is the subject matter of a redevelopment plan approved by the City by ordinance and a Redevelopment Agreement approved by the LCRA after the effective date of this chapter, shall be taxed upon the amount of gross receipts derived from such admission charges at the Stadium Facility during the time the Redeveloper of the Stadium Facility or any Affiliate is the owner, primary tenant, occupant or operator of the Stadium Facility, at the rate corresponding to the estimated total amount of Private Investment for the construction and development of the Stadium Facility as set forth in the Redevelopment Agreement of the Stadium Facility in accordance with the following tax rate schedule:

Amount of Estimated Private Investment in the Stadium Facility	Tax Rate
Less than $50,000,000.00	5% of gross receipts
$50,000,000.00 and above	0% of gross receipts

The tax imposed pursuant to this paragraph shall be payable on quarterly calendar intervals. Upon the expiration of any lease, following and including any renewal terms, for the Stadium Facility or in the event the Redeveloper of the Stadium Facility or Affiliate, for any reason, is no longer the owner, primary tenant, occupant or operator of the Stadium Facility, then any subsequent owner, primary tenant, occupant or operator of the Stadium Facility shall be subject to the same rate of tax as set forth in the first paragraph of this Section 8.08.010. For purposes of this paragraph, "Private Investment" shall mean the total amount to be provided by the owner, primary tenant, occupant or operator, or Affiliate, or any other private party for the construction or development of the Stadium Facility as calculated pursuant to the terms of the Redevelopment Agreement for the Stadium Facility. (1994 C., § 8.08.010; Ord. No. 70531, § 2, 3-2-2017; Ord. No. 68380, § 2, 6-16-2009; Ord. No. 65669, § 2, 2002; Ord. No. 62515, § 1, 1992; Ord. No. 56912, § 1(1), 1975; Ord. No. 56178, § 1(1), 1972; Ord. No. 55522, § 1(1), 1970; Ord. No. 55390, § 1, 1969.) For exclusion see §§ 8.08.110—8.08.130

Charter:

Art. I § 1 (24) License taxes

Art. XX License taxes

RSMo:

RSMo 71.610 et seq. (2016) Taxing powers

City Counselor Ops.: 10214

McQuillin:

26.32 et seq. Charges, taxes and fees for licenses

8.08.015 Boxing matches, shows, or exhibitions—Temporary suspension of tax.

The imposition and collection of the tax imposed on boxing matches, shows or exhibitions by section two of Ordinance 65699 and codified as Section 8.08.010 of the Revised Code of the City of St. Louis is hereby suspended on boxing matches, shows, or exhibitions from July 24, 2005 to December 31, 2008.

The officers, agents and employees of the City are hereby authorized and directed to execute all documents and take such steps as they deem necessary and advisable to carry out and perform the purpose of the ordinance codified in this section, including conducting a pilot program studying the financial implications of such tax suspension as it relates to added City revenue through other tax revenues, including the sale of concessions, souvenirs and other boxing related items, and the promotion, encouragement and attraction of economic development and tourism through the boxing industry.

Any person or persons, partnership of whatever form, or corporation in the business of admitting persons or groups upon payment of an admission charge to a boxing match, show or exhibition shall report to the License Collector quarterly the gross receipts derived from such admission charges. (1994 C., § 8.08.015; Ord. No. 66772, §§ 2—4, 2005.)

8.08.020 Computation—Issuance of license.

The tax imposed by Section 8.08.010 shall be computed upon the currently expired, immediately preceding quarter of the annual calendar. Initially, all businesses so taxed shall make payments of the amount levied on gross receipts received for the period August

16, 1969, to September 30, 1969, inclusive, and for any subsequent calendar quarter which has expired on March 6, 1975. Thereafter, the tax due shall be payable on the first day of the commencing calendar quarter for the immediately past quarter expired; provided further, a period of fifteen days' grace, after the expiration of a quarter, shall be allowed a taxpayer in making payment of the tax due.

The City License Collector may vary or adjust the intervals of payment of tax due to other than the quarterly calendar period where the character or method of operation of the taxpayer's business reasonably so requires.

Upon payment of the tax due, the Collector, upon proper application, shall issue the license as is hereinafter provided, for the immediately following calendar quarter or such other following period or interval as established by the Collector. (1994 C., § 8.08.020; Ord. No. 56912, § 1(2), 1975; Ord. No. 56178, § 1(2), 1972; Ord. No. 56178, § 1(2), 1972; Ord. No. 55522, § 1(2), 1970; Ord. No. 55390, § 2, 1969.)

City Counselor Ops.: 10214

8.08.030 New businesses.

Any person or persons, partnership or corporation initially commencing business after August 16, 1969, upon making proper application to conduct such business as is hereinafter provided, shall be issued a license to conduct such business for the then-current calendar quarter, or such other allowed period, on condition that a true and accurate report of the gross receipts on admission charges for the quarter or other period be made at the close thereof to the Collector and the tax due thereon paid. At the expiration of the quarter or other period, the licensee shall render the report, and pay the tax to the Collector as provided in Section 8.08.020. (1994 C., § 8.08.030; Ord. No. 56912, § 1(3), 1975; Ord. No. 56178, § 1(3), 1972; Ord. No. 55522, § 1(3), 1970; Ord. No. 55390, § 3, 1969.)

City Counselor Ops.: 10214

8.08.040 Single instance or limited time businesses.

Any person or persons, partnership or corporation intending to conduct a business as is taxed by Section 8.08.010, but for a single instance or a limited time shall make proper application for a license as is hereinafter provided, in advance of the event, instance or limited period of activity, and shall deposit a cash amount, or give bond at the Collector's discretion, to the City for a sum equal to the Collector's estimate of the actual tax to become due upon conducting the business. Upon the application and making the deposit or bond the Collector shall issue a license to conduct the business for the instance or limited period. Within forty-eight hours after the occurrence of the instance, event or limited license period, the licensee shall pay to the Collector the actual tax due less any cash previously deposited. (1994 C., § 8.08.040; Ord. No. 56912, § 1(4), 1975; Ord. No. 56178, § 1(4), 1972; Ord. No. 55522, § 1(4), 1970; Ord. No. 55390, § 4, 1969.)

City Counselor Ops.: 10214

8.08.050 Religious, educational or charitable purposes.

The taxes imposed by this chapter shall not be levied upon any religious, educational or charitable organization or undertaking otherwise included as taxable, under Sections 8.08.010, 8.08.110 or 8.08.140, where a substantial part of the net proceeds derived are solely used for religious, educational or charitable purposes. In determining whether a religious, educational or charitable purpose exists, the Collector may require the production of all relevant documents, take testimony under oath to be administered by him and inspect premises and arrangements to be used. The decision of the Collector shall be approved by the Comptroller. Upon granting any such exemption as herein provided, the Collector shall issue a license to the religious, educational or charitable applicant, as is hereinafter provided, plainly evidencing the exemption. Further, where a religious, education or charitable organization or undertaking is granted an exemption from taxation under this section, no person or entity rendering an entertainment, artistic or athletic service or performance for such undertaking shall be subject to the tax imposed by Section 8.08.010. Provided further, where a tax exemption is granted and the Collector at any time thereafter discovers that a true religious, educational or charitable purpose was substantially nonexistent, he shall upon the Comptroller's approval revoke the exemption and levy the tax owing with interest at the legal rate. In such cases, the tax shall be paid forthwith; and in making such determination the Collector shall have the same powers as is provided for determining questions of exemptions initially. (1994 C., § 8.08.050; Ord. No. 62515, § 2, 1992; Ord. No. 56912, § 1(5), 1975; Ord. No. 56178, § 1(5), 1972; Ord. No. 55522, § 1(5), 1970; Ord. No. 55390, § 6, 1969.)

City Counselor Ops.: 10214

8.08.060 Application.

Every person or persons, partnership or corporation subject to the tax imposed by Section 8.08.010, shall before commencing business make an application to the License Collector for a license to be termed "gross receipts license." The application shall identify the applicant and disclose the authority of the applicant to apply for the license, the particulars of the type of business sought to be licensed, the location where the business is to be conducted, the period of time the proposed business is to be conducted and such other information as the License Collector may determine to be pertinent to the applicant's application and business. A license may, upon the Collector's determination, be required for each location where the applicant proposes to conduct business, or a collective license may be issued showing thereon each location lawfully licensed; provided further that the licensing requirements provided for herein shall in no way relieve the requirements for licensing made by Chapters 8.26, 8.32, 8.34, 8.58, 8.100 and 25.36, except the fees, charges or amounts of tax therein levied shall be abrogated where such businesses are required to be licensed hereunder, so that only the tax herein levied shall be imposed in such cases. (1994 C., § 8.08.060; Ord. No. 56912, § 1(6), 1975; Ord. No. 56178, § 1(6), 1972; Ord. No. 55522, § 1(6), 1970; Ord. No. 55390, § 7, 1969.)

City Counselor Ops.: 10214

8.08.070 Other tax liability.

No license hereunder shall be issued unless the applicant therefor, otherwise qualifying, has satisfied all other tax liability owing to City. (1994 C., § 8.08.070; Ord. No. 56912, § 1(7), 1975; Ord. No. 56178, § 1(7), 1972; Ord. No. 55522, § 1(7), 1970; Ord. No. 55390, § 8, 1969.)

City Counselor Ops.: 10214

8.08.080 Rules and regulations.

In order to administer the provisions of Sections 8.08.010—8.08.100, the License Collector shall have rule-making power, and in adopting rules for general application, the Collector shall ascribe definitions of terms used in Chapter 8.06, to words and terms used in this chapter as far as applicable. Any rules so adopted shall have the prior approval of the Comptroller.

The Collector is further empowered to adjust the total tax due for businesses licensed under Sections 8.08.010—8.08.100 having licenses unexpired on August 16, 1969, by giving allowance for the unexpired remaining term after August 16, 1969, on a basis proportioned to the total term of the unexpired license. (1994 C., § 8.08.080; Ord. No. 56912, § 1(8), 1975; Ord. No. 56178, § 1(8), 1972; Ord. No. 55522, § 1(8), 1970; Ord. No. 55390, § 9, 1969.)

City Counselor Ops.: 10214

8.08.090 Intent.

It is hereby declared to be the intent of Sections 8.08.010—8.08.100 to treat all businesses reasonably falling within the inclusion of Section 8.08.010 as one class; to this end businesses heretofore taxed under other City ordinances have been included herein so far as the levying of a business license tax is concerned; provided, however, it is the further intent of Sections 8.08.010—8.08.100 not to completely abrogate any licensing taxes, and if for any reason the imposition of the taxes imposed by Sections 8.08.010—8.08.100 are declared invalid as to any business or person, persons, partnership or corporation, the prior existent ordinance provisions levying taxes shall have continued life and full force and legal effect as if Sections 8.68.010—8.08.100 had not attempted to repeal any prior taxing provisions. (1994 C., § 8.08.090; Ord. No. 56912, § 1(10), 1975; Ord. No. 56178, § 1(10), 1972; Ord. No. 55522, § 1(10), 1970; Ord. No. 55390, § 11, 1969.)

City Counselor Ops.: 10214

8.08.100 Penalty for violation of Sections 8.08.010—8.08.090.

Every person, persons, partnership or corporation convicted of violating any section of Sections 8.08.010—8.08.090 shall be punished by a fine of not less than twenty-five dollars nor more than five hundred dollars or in the case of natural persons, by imprisonment for not more than ninety days or by both fine and imprisonment. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 8.08.100; Ord. No. 56912, § 1(13), 1975; Ord. No. 56178, § 1(13), 1972; Ord. No. 55522, § 1(13), 1970; Ord. No. 55390, § 14, 1969.)

City Counselor Ops.: 10214

8.08.110 Acts in permanent proscenium theaters—Tax levied.

There is levied an occupational and business license tax on any person or persons, partnership of whatever form, or corporation engaging in the business of admitting persons or groups of persons upon payment of an admission charge to scripted legitimate

stage plays presenting comedy, drama and musicals live on stage in permanent proscenium theaters. The rate of the tax shall be as follows:

A. Fifty dollars for one month or less of operation;

B. One hundred and fifty dollars for not more than three months of operation;

C. Two hundred dollars for not more than six months of operation; and

D. Three hundred dollars for more than six months and not more than one year of operation.

The tax shall be immediately due and payable to the License Collector and an occupational or business license shall be required for the continued operation of any existing occupation or business upon the expiration of any heretofore issued lawful license, and before the commencement of any new such occupation or business taxed and licensed hereunder. (1994 C., § 8.08.110; Ord. No. 56907, § 1, 1975.)

8.08.120 Acts in permanent proscenium theaters—License application.

Any person or persons, partnership of whatever form, or corporation intending to engage in the occupation or business taxed by Section 8.08.110 shall, before engaging in such occupation or business, make application for a license to the License Collector and therein fully disclose the applicant's true identity and the particular nature of the occupation or business sought to be licensed, and shall pay the tax levied in Section 8.08.110. The License Collector is empowered to make and enforce rules for the administration of Sections 8.08.110—8.08.130. (1994 C., § 8.08.120; Ord. No. 56907, § 2, 1975.)

8.08.130 Acts in permanent proscenium theaters—Penalty for violation.

Any person or persons, partnership of whatever form, and corporation, or the servants, agents, representatives, directors or officers of the same who violate the provisions of Sections 8.08.110 and 8.08.120 shall, upon conviction thereof, be punished by a fine of not less than fifty dollars and not more than five hundred dollars, or in the case of natural persons, by imprisonment for not more than ninety days or by both fine and imprisonment. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 8.08.130; Ord. No. 56907, § 3, 1975.)

8.08.140 Motion picture shows—Tax imposed.

A tax is levied upon motion picture shows according to the following schedule:

A. For 1 month, $50.00;

B. For 3 months, $150.00;

C. For 6 months, $200.00; and

D. For 1 year, $300.00.

The tax shall be due and payable to the License Collector and a license required for the continued operation of such business immediately upon the expiration of any heretofore lawful license period, or before the commencement of any new motion picture business. Licenses shall be issued showing the period of lawful operation thereunder. (1994 C., § 8.08.140; Ord. No. 56179, § 1, 1972.)

8.08.150 Motion picture shows—Penalty for violation.

Any person, firm or corporation, who or which under Section 8.08.140 is required to pay a license tax and secure a license for the operation of a motion picture show, and fails to do the same prior to the commencement or continuation of business as provided in Section 8.08.140, shall be in violation of Section 8.08.140 and upon conviction be punished by a fine of not less than twenty-five dollars nor more than five hundred dollars or, in the case of natural persons, by imprisonment for not more than ninety days or by both fine and imprisonment. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 8.08.150; Ord. No. 56179, § 2, 1972.)

Chapter 8.10

CIGARETTE OCCUPATION TAX

City Counselor Ops.: 8430, 10077

Sections:

8.10.010 Definitions.
8.10.020 Enforcement.
8.10.030 Intent.
8.10.040 Stamps required.
8.10.050 Tax levy.
8.10.060 Payment—Discount.
8.10.070 Stamps are evidence of payment.
8.10.080 Counterfeit stamps.
8.10.090 Affixing stamps.
8.10.100 Packages without stamps on premises.

8.10.110 Denominations—Tax meter stamps.
8.10.120 Rules and regulations—Records.
8.10.130 Refunds.
8.10.140 Seizure of unstamped packages.
8.10.150 Oaths and subpoenas.
8.10.160 Penalty for violation.
8.10.170 Bond.
8.10.180 Dealers outside City.

8.10.010 Definitions.

When used in this chapter the following words shall have the meanings respectively ascribed to them:

A. "Cigarette" means a roll of tobacco or any substitute thereof wrapped in paper and used for smoking.

B. "Consumer" means a person who comes into possession of tobacco for the purpose of consuming it, giving it away or disposing of it in any way.

C. "Dealer" means any person dealing directly with the manufacturer of cigarettes in their purchase and in the business of selling cigarettes as a first seller.

D. "First seller" means and includes all persons who make the initial or first sale or distribution of cigarettes within the City.

E. "Package" means the individual package, box or other container from which sales of cigarettes are normally made or intended to be made.

F. "Person" means any individual, partnership, society, association, joint stock company, corporation, estate, receiver, trustee, assignee, referee or other person acting in a fiduciary or representative capacity, whether appointed by a court or otherwise, and any combination of individuals.

G. "Retailer" includes persons other than a dealer or wholesaler as defined in this section, who is engaged in the business of selling cigarettes at retail, who shall sell or offer for sale cigarettes, irrespective of quantity, number of sales, giving the same away or exposing the same where it may be taken, or purchased, or otherwise acquired.

H. "Sale" means any transfer of title or possession or both, exchange or barter, conditional or otherwise, in any manner or by any means whatsoever, for a consideration, or any agreement therefor.

I. "Vending machine operator" includes all persons engaged in the distribution or sale of cigarettes by means of coin-operated vending machines.

J. "Wholesaler" includes persons whose principal business is that of a wholesale jobber, and who is known to the trade as such, who sells cigarettes for only the purpose of resale or giving them away, or exposing the same where they may be taken or purchased or otherwise acquired by the retailer. (1948 C., Ch. 13, § 58; 1960 C., § 151.010; 1994 C., § 8.10.010; Ord. No. 46432, § 2(58), 1953.)

8.10.020 Enforcement.

The License Collector may appoint employees to enforce the provision of this chapter whose appointment and salaries shall be designated by Chapter 4.28. (1948 C., Ch. 13, § 59; 1960 C., § 151.020; 1994 C., § 8.10.020; Ord. No. 53566, § 2, 1965; Ord. No. 52780, § 1, 1964; Ord. No. 46503, § 1, 1953; Ord. No. 46432, § 2(59), 1953.)

8.10.030 Intent.

The intention of this chapter is that this tax shall be paid and stamps affixed but once. The intent and meaning of this chapter is that an occupation tax shall be levied, based upon and pursuant to the method provided for by RSMo 92.040 (1949), and pursuant to the powers therein granted, and the power contained in the City Charter. (1948 C., Ch. 13, § 60; 1960 C., § 151.030; 1994 C., § 8.10.030; Ord. No. 46432, § 2(60), 1953.)

8.10.040 Stamps required.

This tax shall be paid and the stamps provided in this chapter shall be affixed by the dealer or wholesaler, as defined in Section 8.10.010, selling cigarettes or displaying or offering them for sale and no dealer shall display or offer for sale in the City any cigarettes without having first affixed the stamps. (1948 C., Ch. 13, § 61; 1960 C., § 151.040; 1994 C., § 8.10.040; Ord. No. 46432, § 2(61), 1953.)

City Counselor Ops.: 10162

8.10.050 Tax levy.

Every dealer or wholesaler engaged in the business of selling cigarettes or offering or displaying the same for sale within the City shall pay an occupation tax at the rate of three dollars and fifty cents per thousand for all cigarettes sold or offered or displayed for sale. This tax shall be paid and the stamps shall be affixed but once, and only affixed by the dealer selling cigarettes or displaying or offering them for sale, and no dealer or wholesaler shall display or offer for sale in the City any cigarettes without first having affixed the stamps hereinafter provided; provided further, however, that the

dealer may sell cigarettes or display or offer them for sale without first affixing the stamps hereinafter provided, to those wholesalers who are doing business within the City and who do business outside the City wherein the selling, displaying or offering for sale of cigarettes outside the City would not require the affixing of stamps, as hereinafter provided further, however, those wholesalers shall be subject to the same regulations of this chapter as the dealers or wholesalers selling, displaying, or offering for sale cigarettes within the City; it being the intent and purpose of this section to require all first sellers, dealers, or wholesalers, to affix the stamps provided for, before selling cigarettes or displaying or offering them for sale, but where wholesalers resell cigarettes outside the City such wholesalers shall be allowed to purchase, and the dealer allowed to sell within the City, cigarettes without having first affixed the stamps as provided, the intention of this section being that the tax shall be paid and the stamps affixed but once. The intent and meaning of this chapter is that the same shall levy an occupation tax based upon and pursuant to the methods provided for by RSMo 92.040 (1959), and pursuant to the powers therein granted and the powers contained in the City Charter. The tax shall be paid and the stamps provided for shall be affixed by the dealer or wholesaler before the same shall be displayed or offered for sale in the City. (1948 C., Ch. 13, § 62; 1960 C., § 151.050; 1994 C., § 8.10.050; Ord. No. 57011, § 2, 1975; Ord. No. 55924, § 2, 1971; Ord. No. 52070, § 1, 1963; Ord. No. 52022, § 1, 1963; Ord. No. 48890, § 1, 1958; Ord. No. 46432, § 2(62), 1953; Ord. No. 44797, § 1, 1949.)

RSMo:

RSMo 92.040 (2016) Taxation and licensing of merchants and manufacturers by certain cities

Cases:

Ordinance imposing a tax on cigarettes sold, offered or displayed for sale at retail, levies on occupation tax, and is within the power of the city of St. Louis. *Ploch v. City of St. Louis,* 138 S.W. 2d 1020 (1940).

City Counselor Ops.: 10432

McQuillin:

26.136 Licensing and taxation of tobacco and cigarette businesses

8.10.060 Payment—Discount.

The tax provided for in Section 8.10.050 shall be paid by purchase from the License Collector of stamps of such design and denomination, as may be prescribed by the Comptroller, and in the sale of such stamps the License Collector shall allow a discount of five percent of the face value thereof. (1948 C., Ch. 13, § 63; 1960 C., § 151.060; 1994 C., § 8.10.060; Ord. No. 48889, § 1, 1958; Ord. No. 46432, § 2(63), 1953.)

8.10.070 Stamps are evidence of payment.

It shall be the duty of every dealer or wholesaler, as defined by Section 8.10.010, selling, offering or displaying for sale any package of cigarettes to have affixed to the package of cigarettes sold, offered or displayed for sale, a stamp purchased from and furnished by the License Collector. These stamps so affixed shall evidence the payment of the tax imposed by this chapter. (1948 C., Ch. 13, § 64; 1960 C., § 151.070; 1994 C., § 8.10.070; Ord. No. 46432, § 2(64), 1953.)

8.10.080 Counterfeit stamps.

No person shall sell, offer or display for sale, cigarettes without having first had affixed to the package thereof the stamp required to be affixed thereto under the provisions of this chapter. No person shall falsely and fraudulently make, forge, alter or counterfeit any stamp prescribed by the Comptroller under the provisions of this chapter or cause or procure to be falsely or fraudulently made, forged, altered or counterfeited, any stamp, or knowingly and willfully utter, publish, pass or tender as true any false, altered, forged or counterfeited stamp or any plate or other device for fraudulently making, forging, altering or counterfeiting any stamp. (1948 C., Ch. 13, § 65; 1960 C., § 151.080; 1994 C., § 8.10.080; Ord. No. 46432, § 2(65), 1953.)

8.10.090 Affixing stamps.

Each dealer or wholesaler as defined by Section 8.10.010, shall have affixed within the time prescribed in this chapter to each package of cigarettes, stamps furnished by and purchased from the License Collector, evidencing the payment of the occupation tax imposed by this chapter. He shall, in any event, open each box, carton or other container and immediately have affixed the stamps to each package therein within the time as the License Collector may fix by regulation after the receipt and prior to the sale of the cigarettes unless the cigarettes are being held for sale outside the City. (1948 C., Ch. 13, § 66; 1960 C., § 151.090; 1994 C., § 8.10.090; Ord. No. 46432, § 2(66), 1953.)

8.10.100 Packages without stamps on premises.

Whenever any cigarettes are found in the place of business of the dealer or wholesaler, as defined by Section 8.10.010, without the stamps affixed, or not

marked as having been received within the time fixed by regulation of the License Collector and not being held for sale outside of the City, the prima facie presumption shall arise that the cigarettes are kept therein in violation of the provisions of this chapter. (1948 C., Ch. 13, § 67; 1960 C., § 151.100; 1994 C., § 8.10.100; Ord. No. 46432, § 2(67), 1953.)

8.10.110 Denominations—Tax meter stamps.

Stamps shall be affixed to each package of cigarettes of an aggregate denomination not less than the amount of the occupation tax upon the dealer or wholesaler, based upon the contents therein and shall be affixed in such manner as to be visible to the purchaser. The affixing of stamps as provided for in this chapter may also include the affixing of tax meter stamps upon packages of cigarettes. The License Collector shall adopt rules and regulations relating to the imprinting of the tax meter stamps as will result in payment of the proper tax as herein imposed. (1948 C., Ch. 13, § 68; 1960 C., § 151.110; 1994 C., § 8.10.110; Ord. No. 46432, § 2(68), 1953.)

8.10.120 Rules and regulations—Records.

For the purpose of enabling the License Collector properly to enforce the terms of this chapter, the following provisions are enacted:

A. Each dealer in the City and those wholesalers and retailers as defined in Section 8.10.010 shall procure and retain invoices showing the amount and value of the shipment of cigarettes received by him, the date thereof, and the name of the shipper, and shall retain this invoice for a period of three years subject to the use and inspection of the License Collector.

B. The License Collector by regulation may provide that whenever cigarettes are shipped into the City, the railroad company, express company, trucking company or other public carrier transporting any shipment thereof shall file with the License Collector a copy of the freight bill within ten days after the delivery in the City of the shipment.

C. All dealers, wholesalers and retailers as defined in Section 8.10.010 within the City shall maintain and keep for a period of three years such other records of cigarettes received, sold or delivered within the City as may be required by the License Collector.

D. The License Collector or his duly authorized representatives, are authorized to examine the books, papers, invoices and other records, stock of cigarettes in and upon any premises where they are placed, stored or sold, and equipment of any such dealer, wholesaler, or retailer pertaining to the sale and delivery of cigarettes taxable under this chapter.

E. To verify the accuracy of the occupation tax imposed and assessed by this chapter, each person, as defined by Section 8.10.010, is directed and required to give to the License Collector, or his duly authorized representatives, the means, facilities and opportunity for such examinations as are herein provided for and required.

F. In addition to the powers herein granted to the License Collector, he is authorized and empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to: (1) the method and means to be used in the affixing of stamps, if any; (2) the denomination and sale of stamps; (3) the delegation of his powers to a deputy or other employee of his office; (4) any other matter or thing pertaining to the administration and enforcement of the provisions of this chapter. (1948 C., Ch. 13, § 69; 1960 C., § 151.120; 1994 C., § 8.10.120; Ord. No. 46432, § 2(69), 1953.)

8.10.130 Refunds.

Whenever any cigarettes, upon which stamps have been placed, have been sold and shipped by him into another city or state for sale or use there, or have become unfit for use and consumption or unsalable, or have been destroyed, the dealer or wholesaler shall be entitled to a refund of the actual amount of tax paid with respect to such cigarettes. If the License Collector is satisfied that any dealer or wholesaler is entitled to a refund, he shall issue to the dealer or wholesaler stamps of sufficient value to cover the refund. The License Collector is authorized to adopt, prescribe and promulgate rules and regulations with regard to the presentation and proof of claim for refunds as he may deem advisable. (1948 C., Ch. 13, § 70; 1960 C., § 151.130; 1994 C., § 8.10.130; Ord. No. 46432, § 2(70), 1953.)

8.10.140 Seizure of unstamped packages.

Whenever the License Collector or any of his duly authorized representatives shall discover any cigarettes subject to tax provided by this chapter and upon which the occupation tax has not been paid or the stamps not affixed as herein required, the License Collector, or such representatives, shall forthwith seize and take possession of such cigarettes together with any vending machine or receptacle in which they are held for sale and they shall thereupon be deemed to be forfeited to the City. The License Collector may, within a reason-

able time thereafter, by a public notice at least five days before the day of sale, sell the forfeited cigarettes, forfeited vending machines and receptacles at a place designated by him and from the proceeds of the sale shall collect the tax due thereon together with a penalty of fifty percent thereof and the costs incurred in such proceedings. The Comptroller shall pay the balance, if any, to the person in whose possession the forfeited cigarettes, forfeited vending machines and receptacles were found; provided, however, that such seizure and sale shall not be deemed to relieve any person from fine or imprisonment provided herein for violation of any provision of this chapter. (1948 C., Ch. 13, § 71; 1960 C., § 151.140; 1994 C., § 8.10.140; Ord. No. 46432, § 2(71), 1953.)

8.10.150 Oaths and subpoenas.

The License Collector or his employees or agents duly designated and authorized by him shall have power to administer oaths and take affidavits in relation to any matter or proceedings in the exercise of their powers and duties under this chapter. The License Collector shall have power to subpoena and require the attendance of witnesses and the production of books, papers and documents to secure information pertinent to the performance of his duties and of the enforcement of this chapter and to examine them in relation thereto. (1948 C., Ch. 13, § 72; 1960 C., § 151.150; 1994 C., § 8.10.150; Ord. No. 46432, § 2(72), 1953.)

8.10.160 Penalty for violation.

Any person violating this chapter by selling or displaying for sale any package of cigarettes not bearing a stamp or a meter imprint stamp, or any person violating this chapter by selling from a vending machine any cigarettes not bearing a stamp or meter imprint stamp, shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars or imprisoned in the workhouse for not more than one year or be punished by both such fine and imprisonment. The sale of each package of unstamped or improperly stamped cigarettes shall be deemed a separate offense. (1948 C., Ch. 13, § 73; 1960 C., § 151.160; 1994 C., § 8.10.160; Ord. No. 46432, § 2(73), 1953.)

8.10.170 Bond.

Every dealer, wholesaler or cigarette vending machine operator offering or displaying for sale any cigarettes within the City where a stamp is required to be affixed under the provisions of this chapter shall deposit with the License Collector the sum of one thousand dollars in cash or a bond in the penal sum of one thousand dollars with good and sufficient sureties approved by the License Collector, the condition of which shall be that in the event the dealer, wholesaler or cigarette machine operator is found guilty of a violation of any provision of this chapter, the cash deposit or the bond shall be and become immediately forfeited. Upon conviction of any person for a violation of any provision of this chapter, the License Collector is empowered and directed immediately to cancel the merchant's license of the person and the person shall not thereafter be eligible to secure a new merchant's license for a period of three years after conviction. The penalties herein provided are to be deemed cumulative and shall be imposed in addition to those imposed by Section 8.10.160. (1948 C., Ch. 13, § 73A(part); 1960 C., § 151.170; 1994 C., § 8.10.170; Ord. No. 46432, § 2(73A(part)), 1953.)

8.10.180 Dealers outside City.

Any dealer whose place of business is outside the corporate limits of the City shall be bound by all of the provisions of this chapter. (1948 C., Ch. 13, § 73A(part); 1960 C., § 151.180; 1994 C., § 8.10.180; Ord. No. 46432, § 2(73A(part)), 1953.)

Chapter 8.12

CONTRACTORS

Editor's Note:

The provisions of Chapter 8.12 have been suspended and replaced by the enforcement of the provisions in Ch. 8.12A.

Sections:

8.12.010 Contractor and person defined.
8.12.020 License required.
8.12.030 Gross receipts statement—Licensing period.
8.12.040 Initial period license.
8.12.050 Application for license.
8.12.060 Termination of business within the City.
8.12.070 Rules and regulations.
8.12.080 Appeals.
8.12.090 Tax.
8.12.100 Subcontractors.

8.12.110 Penalty for violation.

8.12.010 Contractor and person defined.

"Contractor" means and includes every individual, firm, association, joint stock company, joint venture, syndicate, copartnership and corporation engaged in or carrying on or conducting a business within the City as acoustical supplies contractors; air conditioning equipment or systems contractors; asphalt work contractors; boilers contractors; brickwork contractors; bridges contractors; building contractors; building maintenance contractors; building or house moving, raising, shoring, or wrecking contractors; carpentry contractors; carpets contractors; caulking contractors; cement or concrete work contractors; culverts contractors; decorating contractors; dredging contractors; drilling contractors; electric work contractors; elevators contractors; excavating contractors; fire escapes contractors; flooring contractors; foundations contractors; furnace contractors; grading contractors; guttering and spouting contractors; heating contractors; hoisting contractors; home building contractors; janitor service contractors; kitchen equipment contractors; landscaping contractors; land clearing contractors; lathing contractors, linoleum laying contractors; machinery contractors; millwrighting contractors; office building contractors; paint spraying contractors; painting contractors; paper contractors; paper hanging contractors; paving contractors; pile driving contractors; pipelines contractors; plastering contractors; plumbing or gas fitting contractors; prefabricated buildings contractors; roofing contractors; sandblasting contractors; sewer contractors; sheet metal stamping or other works contractors; sidewalks contractors; sprinkler systems contractors; stairs contractors; steam fitting contractors; steel erection contractors; store or office fixtures contractors; street lighting contractors; stonework contractors; street contractors; swimming pools contractors; terrazzo or tile work contractors; tile contractors; tinwork contractors; trenches contractors; tuck pointing contractors; waterproofing contractors; or window contractors.

"Person" as used in this chapter means every individual, firm, association, joint stock company, joint venture, syndicate, copartnership, or corporation. (1960 C., § 697.010; 1994 C., § 8.12.010; Ord. No. 53560, § 1, 1965.)

8.12.020 License required.

No person shall engage in, carry on or conduct the business of a contractor as defined in Section 8.12.010 without first having obtained a license for the performance of such work within the City from the License Collector. (1960 C., § 697.020; 1994 C., § 8.12.020; Ord. No. 53560, § 2, 1965.)

City Counselor Ops.: 9632

8.12.030 Gross receipts statement—Licensing period.

A. Every person engaged in, carrying on or conducting the business of a contractor as herein defined shall file with the License Collector a sworn affidavit on the form prescribed by the Comptroller of the City on or before the 15th day of January, 1979, setting forth, among other things, the gross receipts in money received from the gross work done or services performed, or any combination of work done, services performed and materials furnished by such contractor within the City from January 1, 1978, and including the 31st day of December, 1978. At the time of the filing of such affidavit with the License Collector, the License Collector shall levy and collect the license tax due thereon at a rate of $2.00 per thousand dollars, or fraction thereof, on the gross receipts in money received from the gross work done or services performed, or combination of work done, services performed and materials furnished, as set forth in such sworn statement by such contractor and such contractor shall forthwith pay to the License Collector the tax due thereon from each such annual period.

B. Upon the payment of such license tax, the License Collector shall give his receipt therefor and shall issue a license to engage in and carry on or conduct the business of a contractor as herein defined for the next license period.

C. Licenses shall be issued in advance only for each ensuing annual license period. (1960 C., § 697.030; 1994 C., § 8.12.030; Ord. No. 57487, § 2, 1978; Ord. No. 55387, § 2, 1969; Ord. No. 55152, §§ 2(part), 4(part), 1968; Ord. No. 53560, § 3, 1965.)

City Counselor Ops.: 9632

8.12.040 Initial period license.

For the initial period and beginning period of taxation under this chapter a license fee of twenty-five dollars shall be paid by all contractors as defined in Section 8.12.010 for the period beginning on July 1, 1965 to and including the 31st day of December, 1965. The twenty-five dollar fee shall be credited to any and all taxes under the provisions of this chapter due the City for such period and upon the payment of the

license fee the applicant shall be issued for such period a license to engage in, carry on or conduct the business of a contractor within the City for such initial and beginning license period. The person applying for the license shall tender to the License Collector an application for the license on the form prescribed by the License Collector and approved by the Comptroller of the City. The application shall be completed in full and shall set forth, among other things, the name and address of the applicant, the nature, type of work and business the applicant is presently engaged in, the number of persons employed by the applicant within the City, currently, and the gross receipts in money received from the work done and services performed or combination of work done, services performed and materials furnished, if any, as contractor by the applicant within the City for the six-month period immediately preceding the date of the application, and all other information as shall be set forth in the application, as required by the Comptroller and the License Collector in the enforcement of this chapter. (1960 C., § 697.040; 1994 C., § 8.12.040; Ord. No. 55387, § 3, 1969; Ord. No. 53560, § 4, 1965.)

8.12.050 Application for license.

Every person desiring to engage in, carry on or conduct the business of a contractor, as defined in Section 8.12.010, during any license period shall file an application for the license on the form prescribed by the License Collector and the same shall be completed in full and the person shall tender to the License Collector the sum of twenty-five dollars which fee shall be credited to the license tax due the City for the current license period. Upon receipt of the completed application and the tendering of the sum of twenty-five dollars to the License Collector, the License Collector shall forthwith issue a license to engage in, carry on or conduct the business of a contractor during the then-current license period. (1960 C., § 697.050; 1994 C., § 8.12.050; Ord. No. 55387, § 4, 1969; Ord. No. 53560, § 5, 1965.)

8.12.060 Termination of business within the City.

Should any contractor cease to do business within the City during any license period, such contractor shall within five days after ceasing to do business within the City, report such fact to the License Collector of the City and shall file a sworn statement with the License Collector of the amount of the gross receipts in money received from the gross work done or services performed or combination of work done, services performed, and materials furnished within the City as a contractor, as defined in Section 8.12.010, for the then-current license period and shall forthwith pay to the License Collector of the City the amount of tax due thereon. (1960 C., § 697.060; 1994 C., § 8.12.060; Ord. No. 53560, § 6, 1965.)

8.12.070 Rules and regulations.

The Comptroller of the City is authorized and directed to promulgate rules and regulations, not inconsistent with the provisions of this chapter, to carry out and implement the provisions of this chapter. (1960 C., § 697.070; 1994 C., § 8.12.070; Ord. No. 53560, § 7, 1965.)

8.12.080 Appeals.

Any applicant or licensee who is alleged to be aggrieved by any decision, order, requirement or determination made by the License Collector or any other tax official of the City in the enforcement of this chapter may file a petition in writing for the review of the decision, order, requirement or determination of the License Collector or any other tax official of the City to the Board of Tax Appeals of the City within ten days after the decision, order, requirement or determination on the form prescribed by the Board with the License Collector of the City. The petition shall be in writing and shall be accompanied by fifteen dollars to cover the cost of the hearing. The petition shall set forth in detail the manner or grounds upon which the applicant or licensee alleged that he is aggrieved by any decision, order, requirement or determination of the License Collector or any other tax official of the City. The Board shall have the jurisdiction to hear and decide appeals where it is alleged there is an error in any order, requirement, decision, or determination made by the License Collector in the enforcement of this order, and to this end the Board shall be empowered with all of the powers of the License Collector in the interpretation and enforcement of this chapter.

The Chairman of the Board of Tax Appeals shall call a meeting of the Board within ten days after receiving the petition for review by any applicant or licensee or any person alleged to have been aggrieved by the decision of the License Collector. The Board shall hear all relevant and competent testimony and evidence offered by the petitioner in support of the allegation or allegations in the petition and the Board shall hear all

relevant and competent testimony and evidence concerning the matter offered by the License Collector or any other person.

The Board may find that the appellant has not been aggrieved by the decision, order, requirement or determination of the License Collector and, in such case, shall affirm the decision of the License Collector or the Board may find that the license applicant or licensee has been aggrieved by the decision, order, requirement or determination of the License Collector and may either modify the decision, order, requirement or interpretation of the License Collector or may reverse the decision, order, requirement or determination of the License Collector and shall enter its order, determination or decision which shall be final.

The Board is authorized and directed to promulgate rules and regulations governing its procedures and is empowered to subpoena persons, books, papers and records in the carrying out of its duties under the provisions of this chapter. The Board shall decision an appeal within ten days after the hearing on the appeal. The Board's decision shall be final, subject to review, under the provisions of RSMo Ch. 536 (1959).

The Chairman may continue any appeal to a day certain but, in any event, appeals shall be heard by the Board within sixty days after the filing of the petition. (1960 C., § 697.080; 1994 C., § 8.12.080; Ord. No. 53560, § 8, 1965.)

8.12.090 Tax.

The tax shall be levied at the rate of two dollars per thousand dollars, or fraction thereof, on the gross receipts in money received from the gross work done or services performed or any combination of work done, services performed, and materials furnished by the contractor, within the City during each license period. The minimum license fee for any six-month period shall be the sum of twelve dollars and fifty cents for each such period.

Should any contractor be subject to a gross receipts tax of the City for any six-month period by any licensing or tax ordinance of the City, this chapter shall be construed as to not place a tax on the same gross receipts received by a contractor as defined in Section 8.12.010. Such gross receipts shall be excluded from the term "gross receipts" as used in this chapter. However, the tax as levied in this chapter shall be in addition to the fees, taxes, building permit costs and inspection fees as set forth in the building code, Chapter 25.01. (1960 C., § 697.090; 1994 C., § 8.12.090; Ord. No. 55387, § 5, 1969; Ord. No. 55152, §§ 2(part), 4(part), 1968; Ord. No. 53560, § 9, 1965.)

8.12.100 Subcontractors.

Whenever any contractor subcontracts out work or services or combination of work, services and materials furnished which are taxable under the provisions of this chapter, such contractor in his six-month tax return, if he desires to deduct the amount of work or services or combination of work, services and materials furnished by a subcontractor, shall set forth the amount of the gross receipts paid by the contractor to the subcontractor during the six-month period covered by the return, along with the name of each subcontractor and his address. Deductions for work or services or combination of work, services and materials furnished by a subcontractor are allowable only on condition that the subcontractor is duly licensed under provisions of this chapter. The contractor shall then be permitted to deduct such total amount of gross work done or services performed or any combination of work, services and materials furnished by each subcontractor in arriving at the gross taxable amount of work done or services performed or combination of work, services and materials furnished. Each subcontractor in such event shall be required to file a separate six-month return and shall be liable for the tax due thereon, and shall be required to secure a license and file a return thereon. (1960 C., § 697.100; 1994 C., § 8.12.100; Ord. No. 56137, § 1, 1972; Ord. No. 53560, § 10, 1965.)

8.12.110 Penalty for violation.

Any person, firm or corporation violating the provisions of this chapter shall be punished by a fine of not less than one dollar nor more than five hundred dollars or by imprisonment for not more than ninety days or by both fine and imprisonment. Each day's violation shall constitute a separate offense. Should any person, firm or corporation be adjudged guilty of violating the provisions of this chapter, its license shall be terminated forthwith and no license may be issued to such person, firm or corporation for a period of one year by the License Collector of the City. (1960 C., § 697.110; 1994 C., § 8.12.110; Ord. No. 53560, § 12, 1965.)

Chapter 8.12A

CONTRACTORS

Sections:

8.12A.010 Chapter 8.12 suspended.

8.12A.020 Definitions.
8.12A.030 License required.
8.12A.040 Graduated business license tax—Schedule.
8.12A.050 Graduated business license tax—Designated.
8.12A.060 Subcontractors to be named in application.
8.12A.070 Administration.
8.12A.080 Prosecution or liability not affected.
8.12A.090 Effective date of provisions.
8.12A.100 Penalty for violations.

8.12A.010 Chapter 8.12 suspended.

The application, administration and enforcement of Ordinance 53560, Ordinance 55387, Ordinance 56137 and Ordinance 57487 as codified in Chapter 8.12 are suspended during the period the ordinance codified in this chapter is in full force and effect. (1994 C., § 8.12A.010; Ord. No. 61094, § 1, 1988.)

8.12A.020 Definitions.

The term "contractor" when used in this chapter shall include, but not be limited to, every individual, firm, association, joint stock company, joint venture syndicate, co-partnership and corporation engaged in or carrying on or conducting a business within the City as acoustical supplies contractors; air-conditioning equipment or systems contractors; asphalt work contractors; boilers contractors; brickwork contractors; bridges contractors; building contractors; building maintenance contractors; building or house moving, raising, shoring, or wrecking contractors; carpentry contractors; carpets contractors; caulking contractors; cement or concrete work contractors; culverts contractors; decorating contractors; dredging contractors, drilling contractors; electric work contractors; elevators contractors; excavating contractors; fire escapes contractors; flooring contractors; foundations contractors; furnace contractors; grading contractors; guttering and spouting contractors; heating contractors; hoisting contractors; home building contractors; janitor service contractors; kitchen equipment contractors; landscaping contractors; land clearing contractors; lathing contractors; linoleum laying contractors; machinery contractors; millwrighting contractors; office building contractors; paint spraying contractors; painting contractors; paper contractors; paper hanging contractors; paving contractors; pile driving contractors; pipelines contractors; plastering contractors; plumbing or gas fitting contractors; prefabricated buildings contractors; roofing contractors; sandblasting contractors; sewer contractors; sheet metal stamping or other works contractors; sidewalks contractors; sprinkler systems contractors; stairs contractors; steam fitting contractors; steel erection contractors; store or office fixtures contractors; street lighting contractors; stonework contractors; street contractors; swimming pools contractors; terrazzo or tile work contractors; tuck pointing contractors; waterproofing contractors; window contractors.

"Person" as used in this chapter shall mean every individual, firm, association, joint stock company, joint venture, syndicate, co-partnership, or corporation.

As used in this chapter, "St. Louis employee" means either: a sole proprietor of, or partners or joint venturers conducting an activity for which a graduated business license is required by this chapter; or an individual performing work, for remuneration, who is employed for one thousand nine hundred twenty (1,920) hours or more in any calendar year preceding any year in which a graduated business license is required to be obtained; or a full-time equivalent of a St. Louis employee. A full-time equivalent of a St. Louis employee means each group of two or more part-time employees who in the aggregate are employed by the same employer for one thousand nine hundred twenty (1,920) hours in any calendar year preceding any year in which a graduated business license is required to be obtained. If work or service of employees is performed partly within and partly without the City, the number of hours any employee worked within the City shall be considered and utilized in computation of St. Louis employees. (1994 C., § 8.12A.020; Ord. No. 61094, §§ 3, 6, 1988.)

8.12A.030 License required.

No person shall engage in, or carry on or conduct the business of a contractor without first having obtained a license for the performance of such work within the City from the License Collector. (1994 C., § 8.12A.030; Ord. No. 61094, § 2, 1988.)

8.12A.040 Graduated business license tax—Schedule.

Every person engaged in, carrying on or conducting the business of a contractor shall apply for a business license upon forms prepared by the License Collector and pay the graduated business license tax by January 31, 1989, for a license tax period of January 1,

1989, through June 30, 1989. Upon application and payment of tax due, the License Collector shall issue a business license for the six-month period of January 1, 1989, through June 30, 1989. The tax for said license shall be one-half (½) of the annual tax due pursuant to the graduated business license tax with a minimum tax of seventy-five dollars ($75.00).

Thereafter, every contractor shall be subject to the graduated business license tax and shall apply for a business license upon a form prepared by the License Collector and pay the applicable graduated license tax by July 31, 1989, and every July 31 thereafter. Such license shall be valid for one year, beginning on July 1 of each year and ending on the following June 30. (1994 C., § 8.12A.040; Ord. No. 61094, § 4, 1988.)

8.12A.050 Graduated business license tax—Designated.

The graduated business license tax for contractors shall be the same as in Chapter 8.07. (1994 C., § 8.12A.050; Ord. No. 61094, § 5, 1988.)

8.12A.060 Subcontractors to be named in application.

Whenever any contractor subcontracts out work or services, he shall set forth in his application the name and addresses of the subcontractors he used during the last calendar year; but the contractor is not required to set forth the number of employees used by the subcontractors nor shall the contractor be responsible for the tax liability or licensing requirements for any subcontractor. (1994 C., § 8.12A.060; Ord. No. 61094, § 8, 1988.)

8.12A.070 Administration.

This chapter shall be administered and enforced by the License Collector of the City, who is authorized to devise forms, regulations and procedures consistent with this chapter for such administration and enforcement. (1994 C., § 8.12A.070; Ord. No. 61094, § 9, 1988.)

8.12A.080 Prosecution or liability not affected.

This chapter shall not affect or impair any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before the effective date of the tax provided for by this chapter; but every act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes as if the prior law had remained in full force and effect. No offense committed and no liability, penalty or forfeiture either civilly or criminally incurred prior to the effective date of the tax provided for by this chapter, shall be discharged or affected by this chapter; but prosecutions and suits for such offenses, liabilities, penalties or forfeitures shall be instituted and proceeded with in all respects as if the tax provided for by this chapter had not taken effect. (1994 C., § 8.12A.080; Ord. No. 61094, § 10, 1988.)

8.12A.090 Effective date of provisions.

All present City ordinances providing for the licensing of contractors shall remain in force and effect until December 31, 1988, and this chapter shall be effective on December 31, 1988. (1994 C., § 8.12A.090; Ord. No. 61094, § 7, 1988.)

8.12A.100 Penalty for violations.

Any person convicted of violating this chapter shall be fined the sum of not less than one dollar ($1.00) nor more than five hundred dollars ($500.00) or by imprisonment of not less than one (1) day nor more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 8.12A.100; Ord. No. 61094, § 11, 1988.)

Chapter 8.13

ALARM SYSTEM BUSINESSES

Prior ordinance history: Ords. 58553 and 623052

Sections:

8.13.010 Definitions.
8.13.020 Applicability of provisions.
8.13.030 Alarm business requirements.
8.13.040 Registration of alarm systems with Department of Public Safety.
8.13.050 Alarm systems.
8.13.060 Alarm reporting.
8.13.070 Responsibility of alarm subscriber or user.
8.13.080 False alarms.
8.13.090 Suspension.
8.13.100 Deliberate false alarms.
8.13.110 Automatic dialing and prerecorded message alarm systems prohibited.
8.13.120 Dispatch of panic alarm on burglary alarm system prohibited.
8.13.130 Vision-obscuring device prohibited.

8.13.140 Local alarms not to sound for more than fifteen minutes.

8.13.150 Penalty for violation.

8.13.010 Definitions.

For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein:

"Alarm agent" means any person who is employed by an alarm business, either directly or indirectly, whose duties include any of the following: selling, leasing, installing, maintaining, servicing, repairing, altering, replacing, moving or removing any alarm system in any building, structure or facility.

"Alarm business" means any legally licensed business, regardless of the jurisdiction in which located, which is engaged in the selling, leasing, installing, maintaining, servicing, repairing, altering, replacing, moving or removing any alarm system in any building, structure or facility, to include subcontractors.

"Alarm identification number" means a number issued to an alarm subscriber by the Director of Public Safety for the purpose of identifying the alarm system for dispatching and recordkeeping purposes.

"Alarm site" means a single premises or location served by an alarm system or systems. Each tenancy, if served by a separate alarm system in a multitenant building or complex, shall be considered a separate alarm site.

"Alarm subscriber" means any person who leases, contracts for, buys or otherwise obtains and operates an alarm system for the purpose of obtaining response to the alarm, and on whose premises an alarm system is maintained, excluding audible alarms on motor vehicles and medical alarms.

"Alarm system" means any mechanism, equipment or device, wire or wireless which is designed to detect an unauthorized entry into any building or onto any property, or to direct attention to a robbery, burglary or other emergency in progress, and to signal the above occurrences either by a local or audible alarm or by a silent or remote alarm. The following devices shall not constitute alarm systems within the meaning of this chapter: devices which do not register alarms that are audible, visible or perceptible outside the protected premises; or devices which are not installed, operated or used for the purpose of reporting an emergency to the Police Department.

"Automatic dialing device" means an alarm system which automatically sends over regular telephone lines, by direct connection or otherwise, a prerecorded voice-message indicating the existence of an emergency situation that the alarm system is designed to detect.

"Burglary" means the unlawful entry of a structure to commit a felony or a theft.

"Burglary alarm system" means an alarm system designed to signal an unauthorized entry or attempted entry into a building, structure or facility protected by the alarm system.

"Central monitoring station" means an office to which alarm systems are connected, where operators supervise the circuits on a continuous basis and where there is a subsequent relaying of messages concerning alarm activations to the Police Department.

"Chief of police" means the Chief of the Metropolitan Police Department of the City of St. Louis or his/her designated representative.

"Director of Public Safety" means the Director of Public Safety for the City of St. Louis or his/her designated representative.

"Duress alarm" means a silent alarm signal generated by the manual activation of a device intended to signal a crisis situation requiring police response.

"False alarm" means the activation of a burglary or robbery alarm, whereby the police are summoned to a location and neither of these crimes is occurring nor is there any evidence of these crimes having occurred, or having been attempted. Alarms due to vandalism, destruction of property, telephone line faults, acts of God (to include, but not limited to, thunderstorms as defined by the National Weather Service), or natural or manmade catastrophe as determined by the Chief of Police, shall not be considered "false" under this chapter.

"Holdup alarm" means a silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress.

"Local alarm" means any alarm device audible at the alarm site.

"Panic alarm" means an audible alarm system signal generated by the manual activation of a device intended to signal a life-threatening or emergency situation requiring law enforcement response, not to include burglary alarm systems.

"Person" means and includes natural persons, without regard to number or gender, or any partnership, corporation or other type of legal entity.

"Police department" means the Metropolitan Police Department of the City of St. Louis, Missouri.

"Private guard responder" means a private guard company, an alarm company's guard, an alarm subscriber, or a person or entity appointed by an alarm subscriber to confirm by visual inspection that an attempted or actual crime has occurred at an alarm site.

"Revocation" means the permanent cessation of police response to the site of a registered alarm system.

"Robbery" means the taking or attempting to take anything of value from another person by force or threat of force or violence and/or by putting the victim in fear.

"Subcontractor" means any person or business, regardless of the jurisdiction in which located, who performs duties, directly or indirectly, at the direction of, or for, an alarm business which involve the selling, leasing, installing, maintaining, servicing, repairing, altering, replacing, moving or removing any alarm system in any building, structure or facility.

"Verification attempt" means an attempt by an alarm business or its representative, to contact the alarm site by telephone or other electronic means before requesting police response in an effort to determine if an actual or attempted crime has occurred, or if the alarm was accidentally activated. (1994 C., § 8.13.010; Ord. No. 66264, § 2, 2004.)

8.13.020 Applicability of provisions.

The provisions of this chapter shall apply to all alarm systems, wire or wireless, which are installed, connected, monitored, operated or maintained on the date the ordinance codified in this chapter becomes effective, and subsequent thereto. (1994 C., § 8.13.020; Ord. No. 66264, § 3, 2004.)

8.13.030 Alarm business requirements.

A. *Business License Required.* No alarm business, regardless of the jurisdiction in which located, including any subcontractor working either directly or indirectly at the direction of, or for an alarm business, shall operate in the City of St. Louis without having first procured a business license from the License Collector as required under Ordinance 63082. Before any license shall be issued, the applicant must attach to the application an affidavit that he/she will faithfully carry out the provisions of this chapter. In addition, the License Collector shall procure from the Director of Public Safety the applicant's alarm business disclosure information form as referenced in Subsection B of this section.

B. *Alarm Business Disclosure Information Form Required.* Each alarm company, monitoring service and subcontractor must submit to the Director of Public Safety and to the Chief of Police, at the time of original license application and annually thereafter, during the month of January, a completed alarm business disclosure information form containing the following information:

1. The proper business or trade name, address and telephone company;

2. All other names, addresses and phone numbers under which the company, corporation or person conducts business;

3. If an unincorporated association, the name of the owner and responsible associates;

4. If a corporation, the names and positions of officers in the corporation, and the name and address of the registered agent; and

5. The full name and places of residence and business of a local legal representative designated to accept service on a court summons and appear in court for an alleged violation by the alarm business of any applicable provision of this chapter. Such representative must reside or work within fifty (50) miles of the boundary of the City of St. Louis.

C. *Copy of License to be Furnished to Director of Public Safety and to the Chief of Police.* The owner of an alarm business licensed within the City of St. Louis, including a subcontractor, shall furnish to the Department of Public Safety and to the Chief of Police, a copy of his/her City business license within seven (7) work days of receipt of such license.

D. *Changes of Ownership or Address to be Reported to Department of Public Safety.* The owner of an alarm business licensed within the City of St. Louis, including a subcontractor, shall notify the Department of Public Safety and the Chief of Police in writing within seven (7) work days of any change in ownership or other business information concerning said business.

E. *Authority of License Collector to Revoke Business License.* The License Collector shall have the power and authority to revoke any license issued under this chapter for any willful violation by a licensed alarm business, including a subcontractor, or any provision contained in this chapter. The Director of Public Safety or the Chief of Police may petition the License Collec-

tor to revoke the license of an alarm business for flagrant and continuous violations of this chapter. The license shall be revoked only after the licensee shall have been notified in writing as his/her place of business of the violations complained about and shall have been afforded reasonable opportunity to have a hearing thereon before the License Collector.

F. *Training Requirements for Alarm Agents.*

1. Within one hundred eighty (180) days from the day the ordinance codified in this chapter is signed by the Mayor, any alarm business operating in this City, including a subcontractor, must employ at least one alarm agent who has completed Level I Alarm Certification training as is provided by the National Burglar and Fire Alarm Association.

2. Within one (1) year from the day the ordinance codified in this chapter is signed by the Mayor, any alarm business operating in this City, including a subcontractor, shall require that all alarm agents employed by that company to have completed Level I Alarm Certification Training as is provided by the National Burglar and Fire Alarm Association.

3. New alarm agents of an alarm business, including a subcontractor, shall be required to have completed Level I Alarm Certification training, as is provided by the National Burglar and Fire Alarm Association, within one hundred eighty (180) days from the date of hire. All alarm systems installed by new employees who have not completed Level I Alarm Certification training must be inspected by an alarm agent who has completed such training.

G. *Persons Convicted of Felony Not to be Employed by Alarm Company.* No alarm business, including a subcontractor, shall employ or continue to employ an alarm agent who has been convicted of a felony. In addition, no owner, partner, silent partner or other person with a pecuniary interest in an alarm business, who has direct or indirect contact with alarm subscribers or their records, may have been convicted of a felony.

H. *Exceptions.* The provisions of Subsections B through H of this section shall not apply to:

1. Persons engaged solely in the manufacture or sale of alarm systems or components from a fixed location who do not install, maintain, service or plan the alarm system for any location;

2. Persons engaged in the repair of alarm systems or components from a fixed location and who do not, either personally or through an agent, visit the structure in which, or on which, the alarm system is installed.

I. *Requirement for Alarm Agent Identification Card.* The owner of an alarm business operating in the City, including a subcontractor, shall be responsible for issuing each alarm agent a valid identification card in a form or manner approved by the Director of Public Safety containing a full face photo of the agent, name, height, weight, date of birth, name of employing company and capacity with that company, and signature of holder. Each alarm agent is required to maintain on his/her person a valid identification card while acting in the scope of his/her employment and to produce the identification card upon request of any customer, prospective customer or lawful authority. Each alarm identification card will be valid for a period of two (2) years from the date of issuance, or until the agent terminates employment with the alarm company.

J. *Alarm Agent to Disclose Costs and Scope of Work to Customer.* Each alarm agent, including an agent employed by a subcontractor, shall provide a written estimate to each prospective alarm subscriber before any work is begun. The estimate must provide a full disclosure of all alarm installation and service costs, to include the cost for the electrical inspection and fees charged by the Department of Public Safety. In addition, the written estimate must include information identifying each opening, item or area of the building, structure or facility to be protected and describe the device or devices to be installed.

K. *Alarm Alteration Disclosure.* It shall be unlawful for any person engaging in the alarm business, or any alarm agent, including a person employed by a subcontractor, to adjust, alter, fix or change any alarm system or part thereof without written disclosure of estimated costs and scope of work to the alarm subscriber.

L. *Responsibility of Alarm Business to Train New Subscribers.* Each alarm business, including a subcontractor, shall be required to provide written instructions and training to new alarm subscribers in the proper operation of alarm systems to prevent the transmission of false alarms. Written operating procedures and the phone number of the central monitoring station shall be maintained at each alarm site by the alarm subscriber. At the time of alarm installation, each alarm business, including a subcontractor, shall have the alarm subscriber complete a form approved by the Director of

Public Safety and the Chief of Police in which the subscriber certifies (1) that he/she understands the requirement to register the alarm with the Department of Public Safety prior to activation of the alarm; (2) that he/she has received instructions from the alarm company in the proper operation of the alarm system and understands those instructions; and (3) other requirements or information as determined by the Director of Public Safety and the Chief of Police. In addition, the alarm agent shall provide to the alarm subscriber a brochure approved by the Director of Public Safety and the Chief of Police describing the rights and responsibilities of alarm subscribers. Each alarm business shall monitor each alarm account and establish procedures to identify alarm subscribers who have an excessive number of false alarms according to criteria established by the Director of Public Safety and the Chief of Police. Each alarm business will perform corrective action designed to decrease the number of false alarms, which may include preventive maintenance and/or the upgrading or replacement of alarm systems. (1994 C., § 8.13.030; Ord. No. 66264, § 4, 2004.)

8.13.040 Registration of alarm systems with Department of Public Safety.

A. An alarm subscriber shall not enter into an agreement for the installation of any alarm system with any alarm business or alarm monitoring company, including subcontractors, unless said business is currently licensed by the City of St. Louis and registered with the Department of Public Safety and the Chief of Police.

B. Prior to reporting any alarm sounding to the Police Department, the alarm subscriber shall obtain an alarm identification number, through written notice from the Department of Public Safety, for each separate alarm system on his/her premises, including robbery and panic alarms that are not part of an integrated alarm system. The Department of Public Safety shall also notify, by written notice, the alarm business providing service to the alarm subscriber of said alarm identification number. No police dispatch shall be made in response to the alarm subscriber's alarm until written notice of the alarm identification number is made to both the alarm subscriber and alarm business. Failure to register an alarm system is a violation of this chapter.

C. Application for an alarm identification number shall be made to the Department of Public Safety in a manner and form prescribed by the Director of Public Safety.

D. A registration fee will be charged by the alarm company to the alarm subscriber at the time of initial registration of the alarm system and remitted to the City of St. Louis. Such fee will be assessed annually and remitted to the City of St. Louis in a manner prescribed by the Director of Public Safety. Such registration fee shall be twenty-five ($25.00) dollars for each residential alarm system and fifty ($50.00) dollars for each commercial alarm system. In addition, a copy of the paid application for electrical inspection must be provided by the alarm subscriber at the time of registration. Failure of any alarm subscriber to pay a required fee within thirty (30) days of notice by the Department of Public Safety shall result in suspension of the alarm registration.

The alarm identification number assigned to an alarm system at a specific location shall remain unchanged, even though there is a new alarm subscriber at the residence or business. The alarm company providing service to the alarm system shall notify the Director of Public Safety within ten (10) working days from the date the new alarm subscriber begins occupancy at a location where the alarm system is located, and provide all necessary information concerning such new alarm subscriber, along with the effective date of change in alarm subscribers. It shall be a violation of this chapter for any person to use an alarm identification number assigned to another person; failure to abide by this provision will result in a suspension of alarm registration.

E. The Director of Public Safety may require the appropriate alarm company to perform a re-inspection of any alarm system, to include an electrical inspection, when there is evidence that such alarm system may be generating unnecessary false alarms, or upon request of the Chief of Police. The cost of the re-inspection will be borne by the alarm subscriber. Suspension of alarm registration may be ordered by the Department of Public Safety if such inspection uncovers deficiencies which are not corrected by the alarm subscriber within a time period established by the Director of Public Safety.

F. All alarm systems installed and operating prior to the effective date of the ordinance codified in this chapter shall comply with the provisions of this section within one hundred eighty (180) days of such effective date. Alarm systems installed and operating prior to the effective date of the ordinance codified in this chapter shall not be required to pay an additional electrical permit fee if the alarm company certifies that

the existing system is properly installed and operating. (1994 C., § 8.13.040; Ord. No. 66264, § 5, 2004.)

8.13.050 Alarm systems.

All burglary alarm systems installed after the effective date of the ordinance codified in this chapter must be equipped with audible alert that can be heard by the subscriber throughout the protected premises. All alarm systems must be equipped with stand-by batteries to operate for not less than four (4) hours if power is interrupted. Back-up batteries should also prevent false alarms during power outages. Failure of an alarm subscriber to comply with any provision of this section can result in revocation of the alarm registration. (1994 C., § 8.13.050; Ord. No. 66264, § 6, 2004.)

8.13.060 Alarm reporting.

A. No alarm company or monitoring service shall send, directly or indirectly, an alarm sounding notification to the Police Department following installation of an alarm system, until written notice of the alarm registration number has been received from the Director of Public Safety by both the alarm subscriber and alarm business providing service to such alarm subscriber.

B. All alarm soundings reported to the Police Department, either directly or indirectly, shall be done in a manner prescribed by the Chief of Police and shall include the requirement that the reporting party, alarm company or monitoring service give the valid alarm identification number, type of alarm, exact numerical address of the alarm site, alarm subscriber name and name of current alarm company.

C. Each alarm company shall establish alarm verification procedures with their customers. An up-to-date record shall be maintained by the alarm company containing the name and phone number(s) of both a primary and secondary local emergency contact who may be called to verify the validity of an activated alarm by personally appearing at the alarm site and securing the premises.

D. Prior to requesting police dispatch to the site of an alarm sounding, the appropriate alarm company or monitoring service will make at least two verification attempts to determine if the alarm was activated in error before contacting the police. Additional efforts at verification may be made after police dispatch. A call cancelled by the alarm or monitoring company before police arrival at the scene will not be counted as a false alarm. (1994 C., § 8.13.060; Ord. No. 66264, § 7, 2004.)

8.13.070 Responsibility of alarm subscriber or user.

It shall be the responsibility of the alarm subscriber or user to: maintain premises containing an alarm system in a manner that ensures proper operation of the alarm system; maintain the alarm system in a manner that will prevent or minimize false alarms; refrain from manually activating an alarm for any reason other than for the occurrence of an event for which the alarm system is intended to report; and instruct all personnel who are authorized to activate the alarm system of the proper method of operation, to prevent false alarms. (1994 C., § 8.13.070; Ord. No. 66264, § 8, 2004.)

8.13.080 False alarms.

A. All alarm notifications requiring a police response are characterized as being either a legitimate alarm or a false alarm after inspection of the alarm site by the responding police officer(s).

1. The following situations are considered to be legitimate alarms and are not chargeable to the alarm user:

a. Alarm activated due to criminal activity or attempted criminal activity;

b. Alarm activated as a result of weather (lightning, high winds, etc.);

c. Alarm activated due to a power outage or surge or damage to phone lines;

d. Alarm properly cancelled prior to the officer's arrival;

e. Alarm activated as a result of police radio interference;

f. Other situations where it is determined by the responding police officer(s) that the alarm user could not have reasonably prevented the alarm activation.

2. The following situations are considered to be false alarms and are chargeable to the alarm user if the Police Department responds to the alarm site:

a. Business alarms that are accidentally activated by an employee, owner, cleaning crew or other persons legally at the alarm site, and residential alarms that are accidentally activated by the homeowner, occupant, or person who is legally at the residence;

b. Alarm activated as a result of a domestic animal;

c. Alarm activated due to heating or air conditioning blowers turning on or due to the operation of other mechanical or electrical devices left operating;

d. Alarm activated due to falling stock or movement of hanging signs or other objects;

e. Alarm activated as a result of a malfunction in the alarm system;

f. Alarm caused by any other condition that could have been reasonably prevented by the alarm user.

B. False Alarm Service Fee Schedule. These provisions shall apply to each alarm system one hundred eighty (180) days after the date the ordinance codified in this chapter is signed by the Mayor: Upon receipt of the first (1st) false alarm after the initial activation of an alarm system, the alarm subscriber shall be notified by the Director of Public Safety that a false alarm occurrence has been recorded at the registered alarm address, and notifying the subscriber that any subsequent false alarm occurrences will be subject to penalties as provided by ordinance; upon receipt of the second (2nd) false alarm within a twelve-month period, the alarm subscriber shall be assessed a service fee of twenty-five ($25.00) dollars. Upon receipt of the third (3rd) false alarm within a twelve-month period, the alarm subscriber shall be assessed a service fee of fifty dollars ($50.00). Upon receipt of the fourth (4th) false alarm within a twelve-month period, the alarm subscriber shall be assessed a service fee of fifty dollars ($50.00).

In addition, a written notice shall be issued by the Department of Public Safety to the alarm subscriber, and to the alarm business providing service to such alarm subscriber, advising that police response to the alarm system shall be suspended for a period of thirty (30) days effective fourteen (14) days after the date of the notice. No alarm subscriber or alarm business shall send an alarm sounding notification to the Police Department from an alarm system that has been suspended, except as provided herein.

Police dispatch to a location with an alarm revocation will be limited to those situations where a private guard responder has first responded to the alarm site and confirmed that an attempted, suspected or actual crime has occurred at such alarm site; however, the private responder shall be required to remain at the scene until arrival of police. This provision will also apply to local alarms, but will not apply to the activation of duress, panic or holdup alarms. All service fees for false alarms under this section shall be payable to the City of St. Louis. (1994 C., § 8.13.080; Ord. No. 66264, § 9, 2004.)

8.13.090 Suspension.

An alarm subscriber who has been suspended under the provisions of this chapter shall be reinstated after the completion of the thirty-day suspension provided that the alarm business which installed the alarm system certifies that the alarm subscriber has been retrained in the proper use of the alarm system and certifies that the subscriber's alarm system is in proper working condition. Any alarm subscriber who has been suspended due to false alarms and has been reinstated shall be subject to a service fee of one hundred ($100.00) dollars for each subsequent false alarm reported on their alarm system up to a maximum of three (3) additional false alarms within the original twelve (12) month registration period. If the subscriber exceeds seven (7) false alarms within any registration year a written notice shall be issued by the Department of Public Safety to the alarm subscriber, and to the alarm business providing service to such alarm subscriber, advising that police response to the alarm system shall be suspended for a period of twelve (12) months, effective fourteen (14) days after the date of the notice. No alarm subscriber or alarm business shall send an alarm sounding notification to the Police Department from an alarm system that has been suspended, except as provided herein.

Police dispatch to a location with an alarm revocation will be limited to those situations where a private guard responder has first responded to the alarm site and confirmed that an attempted, suspected or actual crime has occurred at such alarm site; however, the private responder shall be required to remain at the scene until arrival of police. This provision will also apply to local alarms, but will not apply to the activation of duress, panic or holdup alarms. All service fees for false alarms under this section shall be payable to the City of St. Louis.

All other subscribers shall annually revert to the beginning fine structure at the start of each annual registration period. (1994 C., § 8.13.090; Ord. No. 66264, § 10, 2004.)

8.13.100 Deliberate false alarms.

A. No person shall cause to be activated or transmitted to the Police Department an alarm of any type from a wire or wireless system, either directly or indirectly, knowing the same to be false or without basis in fact.

B. No person shall cause to be activated or transmitted to the Police Department an alarm of any type from an unregistered or revoked alarm system, wire or wireless, when no bona fide incident has occurred.

C. Central monitoring stations shall not request law enforcement response to alarm sites when monitoring equipment indicates an alarm system malfunction. (1994 C., § 8.13.100; Ord. No. 66264, § 11, 2004.)

8.13.110 Automatic dialing and prerecorded message alarm systems prohibited.

It is unlawful to maintain, operate, connect or allow to be maintained, operated or connected, any dialing device which automatically dials the Police Department and then relays any pre-recorded message to report any robbery, burglary, or other emergency. (1994 C., § 8.13.110; Ord. No. 66264, § 12, 2004.)

8.13.120 Dispatch of panic alarm on burglary alarm system prohibited.

No alarm agent, alarm business or alarm subscriber shall request dispatch of a panic alarm installed on a burglary alarm system; however, nothing in this section shall prohibit the dispatch of a panic alarm installed on a robbery or medical alarm system, or the dispatch of a duress alarm installed on any alarm system. (1994 C., § 8.13.120; Ord. No. 66264, § 13, 2004.)

8.13.130 Vision-obscuring device prohibited.

It is unlawful for any person to install or use an alarm system or device that emits or produces real or simulated smoke, fog, vapor or any like substances that obscures vision. Use of this device shall result in no police response. (1994 C., § 8.13.130; Ord. No. 66264, § 14, 2004.)

8.13.140 Local alarms not to sound for more than fifteen minutes.

It shall be unlawful for any person to allow a local alarm to sound for more than fifteen minutes without termination; further, it shall be unlawful to allow such alarm to sound a second or subsequent time following the original alarm sounding. (1994 C., § 8.13.140; Ord. No. 66264, § 15, 2004.)

8.13.150 Penalty for violation.

The Department of Public Safety is authorized to enter into contracts for the purpose of implementing the provisions of this chapter.

Any person found to be in violation of any provision of this chapter shall be subject to a fine of not less than one hundred ($100.00) dollars. Each additional violation of any provision of this chapter shall constitute a separate offense, and will subject to an additional fine. All persons charged with a violation of any provision contained in this section shall be issued a summons by the Police Department for appearance in City Court, and if convicted, shall be assessed the fine stipulated in this section for the particular violation. (1994 C., § 8.13.150; Ord. No. 66264, §§ 16, 17, 2004.)

Chapter 8.14

AMBULANCES

City Counselor Ops.: 9896, 10036, 10286

RSMo:

RSMo 190.094 et seq. (2016) Ambulance services and emergency personnel

Sections:

8.14.010 Definitions.
8.14.020 Licenses—Required.
8.14.030 Ambulance license—Application.
8.14.040 Ambulance license—Change of ownership.
8.14.050 Ambulance license—Transfer.
8.14.060 Ambulance license—Defacing.
8.14.070 General standards.
8.14.080 Inspections.
8.14.090 Disaster and emergency aid.
8.14.100 Liability insurance.
8.14.110 Duties of director.
8.14.120 Equipment.
8.14.130 Attendants and drivers—License—Application—Fee.
8.14.140 Attendants and drivers—Applicant investigation—License nontransferable.
8.14.150 Licenses—Renewal.
8.14.160 Licenses—Revocation.
8.14.170 Records.
8.14.180 Obedience to traffic laws.
8.14.190 Penalty for violation.
8.14.200 Appeals.

8.14.010 Definitions.

Unless otherwise specified, the following terms have the herein prescribed meanings:

A. "Ambulance" means any motor vehicle that is specially designed or constructed, and equipped, and is intended to be used for and is maintained or operated for the transportation of patients, including dual purpose police patrol cars and funeral coaches or hearses which otherwise comply with the provisions of this chapter. For the purpose of this chapter, the word "ambulance" shall be understood not to apply to vehicles used for the transportation of persons who are, or may be sick and who are being transported to and from their homes for normally scheduled medical and clinic appointments.

B. "Attendant" means an individual responsible for the operation of an ambulance and the care of the patients whether or not the attendant also serves as driver.

C. "Attendant-driver" means a person who is qualified as an attendant and a driver.

D. "Director" means the Director of the Department of Health and Hospitals of the City.

E. "Driver" means an individual who drives an ambulance.

F. "Patient" means any individual who is acutely ill, injured, wounded, or otherwise incapacitated or helpless and is in urgent need of medical attention and/or hospitalization. For the purposes of this chapter, the word "patient" shall not be understood to apply to persons who are, or may be sick or injured and who are being transported for normally scheduled nonemergent medical or clinic appointments.

G. "Person" means any individual, firm, partnership, association, corporation, company, group of individuals acting together for a common purpose or organization of any kind. (1960 C., § 667.010; 1994 C., § 8.14.010; Ord. No. 55272, § 1, 1969.)

8.14.020 Licenses—Required.

No person, either as owner, agent or otherwise, shall furnish, and operate, conduct, maintain, advertise, or otherwise be engaged in or profess to be engaged in the business or service of the transportation of patients upon the streets, alleys, or any public way or place of the City, unless he holds a currently valid license for an ambulance, issued pursuant to this chapter. An ambulance operated by an agency of the United States shall not be required to be licensed hereunder.

No ambulance shall be operated for ambulance purposes, and no person shall drive, attend or permit it to be operated for such purposes on the streets, alleys or any public way or place of the City unless it shall be under the immediate supervision and direction of a person who is holding a currently valid license as an attendant-driver or attendant.

Provided, however, that no such licenses shall be required for an ambulance, or for the driver, attendant or attendant-driver of an ambulance, which:

A. Is rendering assistance in the case of a major catastrophe or emergency with which the licensed ambulances of the City are insufficient or unable to cope; or

B. Is operated from a location or headquarters outside of the City in order to transport patients who are picked up outside of the City to locations within the City. (1960 C., § 667.020; 1994 C., § 8.14.020; Ord. No. 55272, § 2, 1969.)

City Counselor Ops.: 10286

McQuillin:

26.158 Motor vehicle licensing

8.14.030 Ambulance license—Application.

Applications for ambulance licenses shall be made upon such forms as may be prepared or prescribed by the Director and shall contain:

A. The name and address of the applicant and of the owner of the ambulance;

B. The trade or other fictitious name, if any, under which the applicant does business and proposes to do business;

C. The training and experience of the applicant in the transportation and care of patients;

D. A description of each ambulance, including the make, model, year of manufacture, motor and chassis number; current state license number; the length of time the ambulance has been in use; and the color scheme, insignia, name, monogram or other distinguishing characteristics to be used to designate applicant's ambulance;

E. A photograph of each ambulance;

F. The location and descriptions of the place or places from which it is intended to operate;

G. Such other information as the Director shall deem reasonably necessary to a fair determination of compliance with this chapter. (1960 C., § 667.030; 1994 C., § 8.14.030; Ord. No. 60735, § 2(part), 1988; Ord. No. 55272, § 3, 1969.)

8.14.040 Ambulance license—Change of ownership.

Any change of ownership of a licensed ambulance shall terminate the license and shall require a new application and a new license and conformance with all the requirements of this chapter as upon original licensing. (1960 C., § 667.040(b); 1994 C., § 8.14.040; Ord. No. 55272, § 4(b), 1969.)

8.14.050 Ambulance license—Transfer.

Application for transfer of any ambulance license to another or substitute vehicle shall require conformance with all the requirements of this chapter as upon original licensing. No ambulance license may be sold, assigned or otherwise transferred without the approval of the Director and a finding of conformance with all the requirements of this chapter as upon original licensing. (1960 C. 667.040(c); 1994 C., § 8.14.050; Ord. No. 55272, § 4(c), 1969.)

8.14.060 Ambulance license—Defacing.

No official entry made upon a license may be defaced, removed or obliterated. (1960 C. 667.040(e); 1994 C., § 8.14.060; Ord. No. 55272, § 4(e), 1969.)

8.14.070 General standards.

Each ambulance shall, at all times when in use as such:

A. Conform with the standards, requirements and regulations provided for in this chapter for the transportation of patients, from the standpoint of health, sanitation, and safety, and the nature of the premises in which it is maintained;

B. Contain equipment conforming with the standards, requirements and regulations provided for in this chapter, which equipment shall be in proper and good condition for such use;

C. Currently comply with all applicable laws and local ordinances relating to health, sanitation and safety;

D. Be equipped with such lights, sirens and special markings to designate it as an ambulance as may be prescribed in reasonable regulations promulgated by the Director. (1960 C., § 667.040(a); 1994 C., § 8.14.070; Ord. No. 55272, § 4(a), 1969.)

8.14.080 Inspections.

Each licensed ambulance, its equipment and the premises designated in the application and all records relating to its maintenance and operation as such, shall be open to inspection by the Director or his designated representative during usual hours of operation. (1960 C., § 667.040(d); 1994 C., § 8.14.080; Ord. No. 55272, § 4(d), 1969.)

See § 8.14.110

8.14.090 Disaster and emergency aid.

The Director, in conjunction with the Board of Health is authorized to cooperate with City or other area governmental agencies in areawide programs for disaster and emergency aid, and the regulations developed under Section 8.14.070, which provide for such cooperation, including provision for the transmission of patients to consenting hospitals with adequate emergency room facilities as determined by the Director. (1960 C., § 667.040(f); 1994 C., § 8.14.090; Ord. No. 55272, § 4(f), 1969.)

8.14.100 Liability insurance.

No ambulance license shall be issued under this chapter, nor shall the license be valid after issuance, nor shall any ambulance be operated in the City unless there is at all times in force and effect insurance coverage, issued by an insurance company licensed to do business in the state, for each and every ambulance operated by or for the applicant or licensee, providing for the payment of damages, in such amounts and for such coverages as required by the Missouri Motor Vehicle Safety Responsibility Law, RSMo 303 (1959), as amended, and as amended hereafter.

The insurance policies shall be submitted to the Director for approval prior to the issuance of each ambulance license. Satisfactory evidence that insurance is at all times in force and effect shall be furnished to the Director, in such form as he may specify, by all licensees required to provide such insurance under the provisions of this chapter.

Every insurance policy required hereunder shall contain a provision for a continuing liability thereunder to the full amount thereof, notwithstanding any recovery thereon, that the liability of the insurer shall not be affected by the insolvency or the bankruptcy of the assured, and that until the policy is revoked the insurance company will not be relieved from liability on account of non-payment of premium, failure to renew license at the end of the year, or any act or omission of the named assured.

Every insurance policy required hereunder shall extend for the period to be covered by the license applied for and the insurer shall be obliged to give written notice to the Director and to the assured before any

cancellation or termination thereof earlier than its expiration date and the cancellation or other termination of any policy shall automatically revoke and terminate the licenses issued for the ambulance covered by the policy, unless another insurance policy complying with the provisions of this section shall be provided and be in effect at the time of the cancellation or termination. (1960 C., § 667.050; 1994 C., § 8.14.100; Ord. No. 55272, § 5, 1969.)

8.14.110 Duties of director.

The Director shall, upon receipt of an application for an ambulance license as provided for herein, cause such investigation as he deems necessary to be made of the applicant and of his proposed operations.

The License Collector of the City shall issue a license hereunder for a specified ambulance, to be valid for a period of one year unless earlier suspended, revoked or terminated, when such issuance is certified by the Director after the Director finds:

A. That the public convenience and necessity require the proposed ambulance service;

B. That each ambulance, its required equipment and the premises designated in the application conform to regulations promulgated by the Director as provided in this section;

C. That the applicant is a responsible and proper person to conduct or work in the proposed business;

D. That only duly licensed drivers, attendants, and attendant-drivers are employed in such capacities;

E. That all the requirements of this chapter and all other applicable laws and ordinances have been met.

Prior to the issuance of any ambulance license, the Director shall cause to be inspected the vehicles, equipment and premises designated in each application, to determine compliance with the standards prescribed in Section 8.14.070 and in Section 8.14.120, and with the regulations in such sections; provided, however, that under the terms of this chapter the Director shall have no responsibility, and shall exercise no authority, in connection with laws and ordinances of general applicability which deal with motor vehicle inspection.

Subsequent to issuance of an ambulance license, the Director shall cause to be inspected each licensed vehicle and its equipment and premises, whenever he deems inspection to be necessary, but in any event, no less frequently than twice each year. The periodic inspection required hereunder shall be in addition to any other safety or motor vehicle inspection required to be made for ambulances or other motor vehicles, or other inspections required to be made under general law or ordinances, and shall not excuse compliance with any requirement of law or ordinance to display any official certificate of motor vehicle inspection and approval nor excuse compliance with the requirements of any other applicable general law or ordinance.

A copy of each initial, semi-annual or other ambulance, equipment and premises inspection report by the Director under the provisions of this section shall be promptly transmitted to the applicant or licensee to whom it refers.

The Director is authorized to establish for City-owned and -operated ambulances a fee schedule based on cost of operation and is further authorized to bill and collect such fees in the same manner as is provided for other collections of the Division of Hospitals. (1960 C., § 667.060; 1994 C., § 8.14.110; Ord. No. 55272, § 6, 1969.)

8.14.120 Equipment.

Required equipment in each ambulance shall include, at all times when the ambulance is in use as such, equipment adequate in the judgment of the Director for dressing wounds, splinting fractures, controlling hemorrhage, and providing oxygen.

The Director, in conjunction with the Board of Health, is authorized and directed to promulgate regulations after public notice and to implement standards as to equipment and operation of ambulances. In determining regulations, the Director shall take into consideration recommendations for equipment and operation adopted by the American College of Surgeons or its duly authorized committee on trauma. Ambulance licensees and operators shall comply with regulations as may be promulgated by the Director with the endorsement of the Board of Health. (1960 C., § 667.070; 1994 C., § 8.14.120; Ord. No. 55272, § 7, 1969.)

8.14.130 Attendants and drivers—License—Application—Fee.

Applications for drivers', attendants' and attendant-drivers' licenses hereunder shall be made upon forms as may be prepared or prescribed by the Director and shall contain:

A. The applicant's full name, current residence, places of prior residence, and length of time he has resided in the City;

B. The applicant's age, marital status, height, color of eyes and hair;

C. Whether he has ever been convicted of a felony or misdemeanor, and if so, when and where and for what cause;

D. The applicant's training and experience in the transportation and care of patients and whether he has previously been licensed as a driver, chauffeur, attendant or attendant-driver, and if so, when and where, and whether his license has ever been revoked or suspended in any jurisdiction and for what cause;

E. Affidavits of good character from two reputable citizens of the United States and residents of the City who have personally known the applicant;

F. Two recent photographs of the applicant, of a size designated by the Director, one of which shall be attached to the license;

G. Other information as the Director shall by regulation adopt, deemed reasonably necessary to a fair determination of compliance with this chapter. (1960 C., § 667.080; 1994 C., § 8.14.130; Ord. No. 60735, § 2(part), 1988; Ord. No. 55272, § 8, 1969.)

8.14.140 Attendants and drivers—Applicant investigation—License nontransferable.

A. The Director shall, within a reasonable time after receipt of an application as provided for herein, cause investigation as is necessary to be made of the applicant for a driver's, attendant's or attendant-driver's license, to determine the accuracy of the statements made in the application.

B. The Director shall issue a license to a driver, attendant or attendant-driver, valid for a period of three years, unless earlier suspended, revoked or terminated, when he finds that the applicant:

1. Is not addicted to the use of intoxicating liquors or narcotics, and is morally fit for the position;

2. Is able to speak, read and write the English language;

3. Has been found by a duly licensed physician, upon examination, attested to on a form provided by the Director, to be of sound physique, possessing eyesight corrected to at least 20/40 in the worst eye, and free of physical defects or diseases which might impair the ability to drive or attend an ambulance; and

4. For each applicant for an attendant or attendant-driver's license, the applicant has a currently valid certificate evidencing successful completion of a course of training equivalent to the advanced course in first-aid currently given by the American Red Cross; provided, however, this requirement may be temporarily waived by the Director if the applicant is currently participating in an equivalent course approved by the Director.

Provided, however, that no one shall be licensed as a driver or attendant-driver unless he holds a currently valid chauffeur's permit from the state.

C. A license as driver, attendant or attendant-driver issued hereunder shall not be assignable or transferable.

D. No official entry made upon a license may be defaced, removed, or obliterated.

E. Is competent to use, apply and direct the use and application of all first-aid equipment required to be carried upon a licensed ambulance. (1960 C., § 667.090; 1994 C., § 8.14.140; Ord. No. 55272, § 9, 1969.)

8.14.150 Licenses—Renewal.

Renewal of any license hereunder, upon expiration for any reason or after revocation, shall require conformance with all of the requirements of this chapter as upon original licensing. (1960 C., § 677.100; 1994 C., § 8.14.150; Ord. No. 55272, § 10, 1969.)

8.14.160 Licenses—Revocation.

The Director may, and is authorized to, suspend or revoke a license issued hereunder for failure of a licensee to comply and to maintain compliance with, or for his violation of, any applicable provisions, standards or requirements of this chapter, or of regulations promulgated hereunder or of any other applicable laws or ordinances or regulations promulgated thereunder, but only after warning and such reasonable time for compliance as may be set of the Director. Within thirty days after a suspension, the licensee shall be afforded a hearing, after reasonable notice. The Director shall, within fifteen days after conclusion of such hearing, issue a written decision (which shall include written findings) as to the suspension of the license. The written decision shall be promptly transmitted to the licensee to whom it refers.

The initial, semi-annual or other ambulance, equipment and premises inspection reports of the Director provided for in this chapter shall be prima facie evidence of compliance or noncompliance with, or violation of, the provisions, standards and requirements provided in this chapter, and of the regulations promulgated in this chapter, for the licensing of ambulances.

Upon suspension, revocation or termination of an ambulance license hereunder, the ambulance shall cease

operation and no person shall permit the ambulance to continue operations. Upon suspension, revocation or termination of a driver's, attendant's or attendant-driver's license hereunder, the driver, attendant or attendant-driver shall cease to drive or attend an ambulance and no person shall employ or permit such individual to drive or attend an ambulance. (1960 C., § 667.110; 1994 C., § 8.14.160; Ord. No. 55272, § 11, 1969.)

8.14.170 Records.

Each licensee of an ambulance shall maintain accurate records upon forms as prescribed by, and containing information as may be required by the Director concerning the transportation of each patient within the City or from one place within the City to another place within or beyond its limits. The records shall be available for inspection by the Director at any reasonable time, and copies thereof shall be filed by the licensee within twenty-four hours on request by the Director.

The provisions of this section shall apply with equal force in case the patient shall die before being transported in the ambulance, or dies while being transported therein or at any time prior to the acceptance of the patient into the responsibility of the hospital or medical or other authority if the patient is still under the care or responsibility of the ambulance. (1960 C., § 667.120; 1994 C., § 8.14.170; Ord. No. 55272, § 12, 1969.)

8.14.180 Obedience to traffic laws.

A. The driver of an ambulance, when responding to an emergency call or while transporting a patient, may exercise the privileges set forth in this section; but subject to the conditions herein stated, and only when the driver has reasonable grounds to believe that an emergency in fact exists requiring the exercise of such privileges.

B. Subject to the provisions of Subsection A hereof the driver of an ambulance may:

1. Park or stand, irrespective of the otherwise applicable provisions of law, ordinance or regulation;

2. Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

3. Exceed the maximum speed limits permitted by law, ordinance or regulation, so long as he does not endanger life or property; and

4. Disregard laws, ordinances or regulations governing direction or movement or turning in specified directions.

C. The exemptions granted herein shall apply only when the ambulance is making use of audible and visual signals meeting the requirements of law, ordinance and regulation.

D. The foregoing provisions of this section shall not relieve the driver of an ambulance from the duty to drive with due regard for the safety of all persons; nor shall the provisions protect the driver from the consequences of his reckless disregard for the safety of others. (1960 C., § 667.130; 1994 C., § 8.14.180; Ord. No. 55272, § 13, 1969.)

RSMo:

RSMo 304.022 (2016)—Similar provisions

McQuillin:

24.639 Vehicles excepted from speed regulations

24.614 Exception to requirement of obedience to traffic signals

30.161 Applicability of law of the road to ambulances

53.86 Nonliability of municipality for negligence in operation of ambulance

8.14.190 Penalty for violation.

Any person violating, or failing to comply with, any provision of this chapter shall be deemed guilty of a misdemeanor; and, upon conviction thereof, shall be fined an amount not exceeding five hundred dollars; or be imprisoned for a period not exceeding thirty days; or be both so fined and imprisoned for each offense.

Each day that any violation of, or failure to comply with, this chapter is committed or permitted to continue shall constitute a separate and distinct offense under this section and shall be punishable as such. (1960 C., § 667.140; 1994 C., § 8.14.190; Ord. No. 55272, § 14, 1969.)

8.14.200 Appeals.

Any person aggrieved by any action of the Director may appeal such action to the Board of Public Service of the City within seven days of such decision by filing a written appeal to the Board of Public Service. The Board of Public Service shall hear the appeal and thereafter render its decision affirming, reversing or modifying or reversing the action of the Director, and to such end shall possess all the powers on appeal granted the Director in this chapter. The decision shall be subject to the procedures and review provided by the

Administrative Review Act of the state. (1960 C., § 667.150; 1994 C., § 8.14.200; Ord. No. 55272, § 17, 1969.)

Chapter 8.16

ARCADES

Sections:

8.16.010 Definitions.
8.16.020 Coin-operated amusement devices.
8.16.040 Contents of application.
8.16.070 Hearing.
8.16.080 Approval.
8.16.090 Regulations.
8.16.110 Revocation—By neighborhood petition.
8.16.120 Revocation—For violations.
8.16.130 Rules, regulations and forms.
8.16.150 Authorization for issuance—Notices of revocation.
8.16.160 Excluded establishments.
8.16.170 Amusement device in certain open air space prohibited.
8.16.180 Penalty for violations.

8.16.010 Definitions.

Words and phrases as used in this chapter shall have the following meanings:

A. The word "arcade," as used in this chapter, shall mean a business establishment containing three (3) or more coin-operated amusement devices and having within the business establishment at any time during its operation less than 15 employees.

B. "Coin-operated amusement device" includes, but is not limited to, pinball machines, shuffle alleys, arcade type machines, coin-operated radios or television sets, or any other type or kind of coin-operated amusement devices. Devices vending commodities such as cigarettes, candy, beverages or food stuffs are excluded hereunder. Coin-operated phonographs, juke boxes, or other machines or devices reproducing musical or other sounds are also excluded hereunder.

C. "Keeper" means any person, firm or corporation which operates an arcade.

D. "Premises" means a structure or building in which an arcade is situated. (1960 C., § 725.020; 1994 C., § 8.16.010; Ord. No. 70813, § 1(8.16.010), 7-16-2018; Ord. No. 58645, § 1, 1982; Ord. No. 57294, § 1, 1977; Ord. No. 56788, § 1(part), 1974.)

8.16.020 Coin-operated amusement devices.

There shall be a license fee for coin-operated amusement devices as set by Section 8.06.426. (1960 C., § 725.020; 1994 C., § 8.16.020; Ord. No. 70813, § 1(8.16.020), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.040 Contents of application.

Every person applying for an arcade license shall file a written application and drawing with the Board of Public Service setting forth his qualifications as follows:

A. Name, address, birthdate and place of birth;

B. His employment background for twelve years prior to the date of application and whether any previous business or occupational license, including any alcoholic beverage license and arcade license has been revoked and for what reasons;

C. Other facts relevant to the general personal history of the applicant as he or the Board of Public Service shall find necessary to a fair determination of the applicant's eligibility for a license;

D. The applicant shall also file a drawing of the proposed premises showing the dimensions thereof together with the proposed number and location of the coin-operated amusement devices, and also indicating the location of all doorways, windows, lights, entrances, and exits to the premises and the restroom facilities, if any, and the drawing shall remain as part of the record concerning the application and premises. (1960 C., § 725.040; 1994 C., § 8.16.040; Ord. No. 70813, § 1(8.16.040), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.070 Hearing.

After filing of the application, and other additional information as may be required by the Board of Public Service, it shall set a date for the hearing on the application within a reasonable time after the filing of the application or the last information, and shall give the applicant written notice of the date of the hearing. At the hearing, the applicant shall be entitled to produce testimony under oath, and the Board of Public Service shall have the authority to subpoena witnesses and to take their testimony under oath pertaining to all matters connected with the application, and any interested person in the matter shall have the right to give testimony. (1960 C., § 725.070; 1994 C., § 8.16.070; Ord. No. 70813, § 1(8.16.070), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.080 Approval.

A majority of the Board of Public Service in its sound discretion may approve the application after a hearing, if it is satisfied that the applicant is of good moral character and that the applicant has given evidence that he will be able to operate the premises in compliance with all regulations and laws governing such premises, and the applicant is a resident of the state. A majority of the Board of Public Service may propose and require changes in the premises in regard to the doorways, windows, lights, entrances, exists and toilet facilities, and in regard to the number and location of coin-operated devices, before granting its approval of the application. (1960 C., § 725.080; 1994 C., § 8.16.080; Ord. No. 70813, § 1(8.16.080), 7-16-2018; Ord. No. 57294, § 5, 1977; Ord. No. 56788, § 1(part), 1974.)

Cases:

Arcade ordinance which vested in the Board of Public Service the discretion to issue an arcade license if satisfied that the applicant was of good moral character was not unconstitutional as applied to non-First Amendment activity. *City of St. Louis v. Kiely,* 652 S.W. 2d 694 (Mo. App. 1983).

8.16.090 Regulations.

The following regulations shall apply to all licensed arcades, and a licensee or operator of an arcade is at all times responsible for the orderly conduct of his arcade and the acts of any of his agents, servants or employees in the operation of his arcade.

A. All arcades shall be open only between the hours of nine a.m. and one a.m. Central Standard Time or Daylight Saving Time, whichever shall be in effect. All arcades shall have all patrons removed and the doors locked by the closing times mentioned herein and shall suffer no person subject to curfew regulations to be or remain on the premises in violation of the curfew hours. Any licensee who repeatedly violates this regulation concerning curfew hours shall be deemed to have, prima facie, violated these regulations without showing of other violations.

B. All arcades shall be kept clean and well-lighted so that the rear of the premises is plainly visible from the front of the premises.

C. No arcade shall suffer or permit any loud noises, boisterous or disorderly conduct in or around the premises or on any grounds of the premises, and he shall prevent the loitering of persons on the premises or on or around the grounds thereof.

D. A licensee shall not increase the number of coin-operated amusement devices over the number specified in his drawing filed with the Board of Public Service; provided, however, the Board may authorize the increase upon application by the licensee. (1960 C., § 725.090; 1994 C., § 8.16.090; Ord. No. 70813, § 1(8.16.090), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.110 Revocation—By neighborhood petition.

Whenever a majority of the persons, if any, owning property, and a majority of persons who are registered voters, if any, occupying premises or conducting any business on the main surface floor of premises within a prescribed petition circle drawn by a radius of three hundred feet plus one-half of the width of the front of the arcade from the center of the premises projected to the street, shall sign and thereafter file a written petition before the Board of Public Service demanding the revocation of the license which has been issued for arcade premises within the above-mentioned area, the license shall be revoked and be held null and void if a majority of the Board of Public Service finds that the petition is in the form prescribed in this section. (1960 C., § 725.110; 1994 C., § 8.16.110; Ord. No. 70813, § 1(8.16.110), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.120 Revocation—For violations.

In addition to the revocation by neighborhood petition, a majority of the Board of Public Service may suspend any or all of a licensee's licenses for a period of not more than thirty days or any portion thereof, or may revoke any or all of a licensee's licenses for any coin-operated amusement device premises whenever it is found that the licensee has obtained any license through misrepresentation or fraud or that the licensee has disregarded or violated any of the regulations or laws for coin-operated amusement device premises. The licensee shall be notified in writing of the charges or infractions. These shall be mailed to the licensee at the address of any of his licensed premises or at the last known residence of the licensee. A public hearing shall be held before the Board of Public Service at a specified time. At the hearing, evidence under oath shall be heard concerning the charges or infractions and the licensee or his attorney may present evidence in answer to defense thereto. Evidence of infractions or violations other than those specified in writing to the licensee may also be presented at the hearing; provided, however,

that the licensee shall be given reasonable additional time, if he so requests, to prepare his answer or defense to such additional infractions or violations. The Board of Public Service shall render a decision within fourteen days after completion of the formal hearing and shall mail a copy of its decision to the licensee. Appeals from the decision of the Board may be taken by the licensee as provided by law. Any person whose license has been revoked shall not again be allowed to obtain an arcade license for two years next thereafter. (1960 C., § 725.120; 1994 C., § 8.16.120; Ord. No. 70813, § 1(8.16.120), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.130 Rules, regulations and forms.

The Board of Public Service is authorized to adopt all necessary forms and to enact, promulgate and enforce all rules and regulations necessary for the reasonable interpretation and enforcement of this chapter. (1960 C., § 725.130; 1994 C., § 8.16.130; Ord. No. 70813, § 1(8.16.130), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.150 Authorization for issuance—Notices of revocation.

The License Collector is prohibited from issuing an arcade license until an authorization therefor has been issued by the Board of Public Service as provided in this chapter.

Should any license issued under this chapter be ordered revoked, the License Collector shall immediately upon receipt of the notice of revocation, revoke the arcade license for coin-operated amusement devices and keepers thereof by written notice addressed to the licensee at the address of any of his licensed premises or at his last known address.

Whenever a license shall be revoked by the Board of Public Service, the Sectretary of the Board of Public Service shall immediately notify the License Collector of the revocation. (1960 C., § 725.150; 1994 C., § 8.16.150; Ord. No. 70813, § 1(8.16.150), 7-16-2018; Ord. No. 56788, § 1(part), 1974.)

8.16.160 Excluded establishments.

Any establishment which is required to secure a neighborhood consent petition, viz: a tavern, as a condition preceding its being licensed, is exempted from the terms and conditions of this chapter. (1994 C., § 8.16.160; Ord. No. 70813, § 1(8.16.160), 7-16-2018; Ord. No. 56788, § 2, 1974.)

8.16.170 Amusement device in certain open air space prohibited.

The keeping, maintenance, or operation of any coin-operated amusement device in any open air space with at least one boundary being a public street, alley or highway is hereby expressly prohibited. (1994 C., § 8.16.170; Ord. No. 70813, § 1(8.16.170), 7-16-2018; Ord. No. 58645, § 5, 1982.)

8.16.180 Penalty for violations.

Any business licensed otherwise than as an arcade as herein provided which permits the operation of three (3) coin-operated amusement devices located within such establishment, shall have its license revoked after notice to the licensee thereof as provided in Section 8.16.120. (1994 C., § 8.16.180; Ord. No. 70813, § 1(8.16.180), 7-16-2018; Ord. No. 58645, § 6, 1982.)

Chapter 8.18

AUCTIONS AND AUCTIONEERS

Prior code history: 1948 C. Ch. 7 §§ 1—18; 1960 C. §§ 645.010—645.180

Editor's Note:

1948 C. Ch. 7 § 19 and Ordinance 46591 have been held unconstitutional, see *Hagerman v. City of St. Louis,* 283 S.W. 2nd 623 (1955).

RSMo:

RSMo Ch. 343 (2016) Public auctioneers

Cases:

City ordinance making retail auction sale of jewelry unlawful unless owner of stock offered for sale has been in retail jewelry business at location at which sale is to be cried for at least one year and has not conducted auction sale at such location within year is a "special law" and therefore unconstitutional. *Hagerman v. City of St. Louis,* 283 S.W. 2d 623 (1955).

Sections:

8.18.010 Definitions.

8.18.020 Public auctioneer—License—Required.

8.18.040 Public auctioneer—License prerequisites.

8.18.050 Public auctioneer—License fees.

8.18.060 Public auctioneer—License issuance fee.

8.18.070 Auction crier—License required.

8.18.080 Auction crier—License application.

8.18.090 Auction crier—License issuance—Separate.

8.18.100 Auction crier—License fee.
8.18.110 Standard for issuance or revocation of license.
8.18.120 Inspection of property.
8.18.130 False statements by auction crier.
8.18.140 Cappers and boosters prohibited.
8.18.150 Sale of "fill in" articles prohibited.
8.18.160 Penalties.

8.18.010 Definitions.

The following words shall have the meanings respectively ascribed to them in this section:

A. "Auction crier" means an individual who sells or offers to sell by public outcry to the highest bidder any of the property described in Subsection C of this section in any building, street, alley or other place in the City whether it is exempt from auction duty or not.

B. "Fill in stock" means merchandise added to the stock on hand with the intention of selling it at public auction.

C. "Public auctioneer" means any person who shall arrange for the disposal of any goods, wares, merchandise, fruits, stocks, bonds and other securities, livestock or other personal property, or any real estate, or interest therein, in any building, or in any of the streets or alleys, or in any other place in the City at public offering to the highest bidder when the bids are called for, either in person or by duly employed and licensed auction criers where any and all persons who choose are permitted to attend and offer bids; or any person who shall advertise as a public auctioneer or in any way hold himself out as a public auctioneer for public patronage or who shall receive fees as a commission for his services as a public auctioneer.

D. "Stock on hand" means any merchandise that a merchant usually and ordinarily carries throughout the year. It does not include merchandise purchased or otherwise acquired especially and purposely for sale at public auction. (1994 C., § 8.18.010; Ord. No. 58570, § 2(part), 1982.)

8.18.020 Public auctioneer—License—Required.

It shall be unlawful for any person to sell, dispose of, or offer for sale at public auction within the City, or cause or permit to be sold, disposed of or offered for sale at public auction within the City, or in any other manner to carry on the business of selling at public auction, any property, whether the same shall be his own property or the property of others, without first complying with the provisions of this chapter and obtaining a license as a public auctioneer, provided, that this section shall not apply to judicial sales or sales made by executors or administrators.

Any person desiring to dispose of any property by public auction shall make a written application to the License Collector of the City and incorporate in this application the following particulars:

A. Name and address of applicant; firms, corporations and associations shall give place where organized or incorporated;

B. Length of time applicant has been a resident of Missouri;

C. Length of time applicant has been in business in the City as a licensed public auctioneer, or as a licensed auction crier, or retail or wholesale merchant of any property;

D. Time and place of any public auction sales applicant may have conducted in the City within two years prior to date of application;

E. Names and addresses of persons in applicant's regular employ whom he desires to be licensed as his auction criers;

F. General description of goods, wares and merchandise to be disposed of at public auction, and the name and address of the owner or owners;

G. Streets and numbers where auctions are to be held;

H. Oath or affirmation to the truth of the statements made in the application;

I. That all of the conditions, obligations, and requirements contained in Ordinance 54850, dealing with a written statement issued jointly by the collector of revenue and the License Collector concerning payment of personal property and/or earnings tax have been satisfied. (1994 C., § 8.18.020; Ord. No. 58570, § 2(part), 1982.)

8.18.040 Public auctioneer—License prerequisites.

Whenever the applicant has resided in this state six months next preceding the date of application and shall present an application giving the information required, together with such other information as the License Collector may require, and shall pay the license fee, the License Collector shall issue to the applicant a license to carry on the business of public auctioneer. The License Collector may issue a license to any nonresident individual upon application and payment of the

appropriate license fees. (1994 C., § 8.18.040; Ord. No. 58570, § 2(part), 1982.)

8.18.050 Public auctioneer—License fees.

Pursuant to RSMo 343.080, as amended, there is hereby levied upon every auctioneer license, a fee as follows:

A. On each license for one month, ten dollars;

B. On each license for three months, twenty dollars;

C. On each license for six months, thirty dollars;

D. On each license for twelve months, fifty dollars. (1994 C., § 8.18.050; Ord. No. 58570, § 2(part), 1982.)

8.18.060 Public auctioneer—License issuance fee.

Pursuant to RSMo 343.090, as amended, there is hereby levied an issuance fee of two dollars on each auctioneer's license delivered. The fee shall be paid into the City's general revenue fund. (1994 C., § 8.18.060; Ord. No. 58570, § 2(part), 1982.)

8.18.070 Auction crier—License required.

No person during the course of any public auction of any property shall act as auction crier and shall sell, offer to sell, ask or solicit bids by public outcry without first obtaining a license as an auction crier; provided, however, that no person shall be licensed as an auction crier except upon the written application of a duly licensed public auctioneer. (1994 C., § 8.18.070; Ord. No. 58570, § 2(part), 1982.)

8.18.080 Auction crier—License application.

Before any license shall be issued to any auction crier, he shall make written application for same to the License Collector, giving his name and address, his business or occupation during the same year preceding his application, and shall make oath or affirmation to the truth of the statements in his application. This application must be signed by the public auctioneer regularly employing such applicant as auction crier. (1994 C., § 8.18.080; Ord. No. 58570, § 2(part), 1982.)

8.18.090 Auction crier—License issuance—Separate.

Whenever any applicant shall present an application to the division under the provisions of Section 8.18.080, signed as required and giving the information above described, together with such other information as the License Collector may require, and pay the license fee, and if the License Collector shall be satisfied as to the applicant's qualifications and moral character, he shall issue to the applicant a license as an auction crier for the public auctioneer signing his application. Any person licensed as an auction crier shall be prohibited from acting as an auction crier for any other public auctioneer without first taking out a new license for that purpose. (1994 C., § 8.18.090; Ord. No. 58570, § 2(part), 1982.)

8.18.100 Auction crier—License fee.

There shall be paid to the License Collector before the delivery of any license issued the following fee:

Auction crier's license: $10.00.

All auction crier's licenses shall be valid for a twelve-month period and shall not be transferable. (1994 C., § 8.18.100; Ord. No. 58570, § 2(part), 1982.)

8.18.110 Standard for issuance or revocation of license.

A public auctioneer's or auction crier's license may be revoked or an application for issuance or renewal of such license may be refused if the License Collector determines sufficient cause after notice and hearing before the License Collector. The service of such notice shall not be less than three days prior to the time fixed therein for the hearing. The applicant or licensee against whom such complaint is made shall have an opportunity to be heard in answer to such complaint, and at the time specified in such notice, and to make defense thereto.

Sufficient cause for revocation or non-issuance or renewal of a license shall include:

A. The applicant or licenseholder is not an individual of good moral character and business responsibility; or

B. That the application of the applicant or licenseholder contains any false, fraudulent, or misleading material statement; or

C. That the applicant or licenseholder has made any false fraudulent, or misleading material statement in the course of conducting an auction sale of, or in offering for sale at auction, any real or personal property in St. Louis County; or

D. That the applicant or licenseholder has perpetrated a fraud upon any person whether or not such fraud was perpetrated in the conduct of an auction in the City; or

E. That the applicant or licenseholder has violated any of the statutes of the State of Missouri or the Revised Code of the City relating to auctions or auctioneers; or

F. That the applicant has been convicted of any crime or misdemeanor involving moral turpitude; or

G. That the applicant or licenseholder has conducted an auction sale of, or offered for sale at auction, any real or personal property in St. Louis in an unlawful manner or in such a manner as to constitute a breach of the peace or a menace to the health, safety, or general welfare of the public. (1994 C., § 8.18.110; Ord. No. 58570, § 2(part), 1982.)

8.18.120 Inspection of property.

The License Collector and/or Police Department may inspect and investigate any part of or all of any property coming within the purview of this chapter either before or after issuing the public auctioneer's license in order to determine the truth of any representation made by the original applicant or any of his auction criers in any application and/or any advertisement of any auction. (1994 C., § 8.18.120; Ord. No. 58570, § 2(part), 1982.)

8.18.130 False statements by auction crier.

No person acting as auction crier shall make any statements which are false in any particular, or which have a tendency to mislead any person present, nor shall he make any misrepresentation as to the quality, quantity, character, present condition, value, cost, general selling price, or as to whether new or secondhand, of any property offered for disposal by auction sale. Further, no person acting as auction crier shall sell or offer for sale any "fill in" article without first stating such fact in a clear, audible tone of voice to all persons present at the auction. (1994 C., § 8.18.130; Ord. No. 58570, § 2(part), 1982.)

8.18.140 Cappers and boosters prohibited.

No person shall act as, nor shall a public auctioneer employ, a by-bidder or what is commonly known as a "capper" or "booster" at any public auction or place where any such auction takes place. No person shall offer to make any false bid or offer any false bid to buy or pretend to buy any such article sold or offered for sale at any such auction. (1994 C., § 8.18.140; Ord. No. 58570, § 2(part), 1982.)

8.18.150 Sale of "fill in" articles prohibited.

No licensee, his agents or employees, shall sell or offer for sale any "fill in" article unless in every advertisement of the auction there is contained a clear and unequivocal statement of the fact that the "fill in" goods and merchandise have been added to the "stock on hand." Such statement shall be in type or writing of equal prominence with each and every other statement of the advertisement. (1994 C., § 8.18.150; Ord. No. 58570, § 2(part), 1982.)

8.18.160 Penalties.

Every person who shall violate any of the provisions of this Chapter 8.18 of the Revised Code of the City, as amended, or any of the provisions of r RSMo 343 (1969), as amended, shall be deemed guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not less than twenty dollars or more than five hundred dollars, and shall thereafter be disqualified from exercising the rights or pursuing the business of an auctioneer for a period of one year from the date of his conviction. (1994 C., § 8.18.160; Ord. No. 58570, § 2(part), 1982.)

Chapter 8.20

BANKS, BROKERS, INSURANCE AND BONDING COMPANIES

RSMo:

RSMo Ch. 362 (2016). Banks and trust companies

RSMo Ch. 375 (2016) Insurance companies

Sections:

8.20.010 Definitions.
8.20.020 License—Required.
8.20.050 Posting license.
8.20.060 To whom licenses prohibited.
8.20.080 Bonding companies.

8.20.010 Definitions.

For the purpose of this chapter the following words and phrases shall have the meanings respectively ascribed to them unless otherwise specifically provided:

A. "Banks and bankers" means every person, bank, banking company or institution having a place of business where credits are opened in favor of anyone, on time or current deposits, or on collections of money or currency, subject to be repaid or remitted upon drafts, checks or orders, or where money or currency is advanced or loaned on stocks, bonds, bullion, bills of exchange or promissory notes, or where stocks, bonds, bullion, bills of exchange or promissory notes are received for discount or sale.

B. "Financial agent or broker" means every person, other than bankers or banking corporations in the meaning of Subsection A., who negotiates, obtains or effects loans of money on real estate security or on collateral security or personal guarantees, or who effects or negotiates for the purchase or sale of stocks, bonds, bills of exchange, bullion, coin money or currency, promissory notes or other securities for themselves or others.

C. "Insurance companies" means every corporation, institution or association, whether organized as a stock company, joint stock company, mutual company or reciprocal organization, or as subscribers operating through an attorney in fact, or as an exchange, association or organization of any character whatever that issues any insurance policy for fire, marine life, mutual or other insurance. (1948 C., Ch. 13, § 2; 1960 C., § 616.010; 1994 C., § 8.20.010.)

City Counselor Ops.: 8340, 8983, 9264

8.20.020 License—Required.

No person shall carry on the business of banking or banker, financial agent or broker, or insurance company in this City without having first obtained a license therefor.

This license may, in the discretion of the applicant, be issued for twelve or six months in advance. (1948 C., Ch. 13, § 3; 1960 C., § 616.020; 1994 C., § 8.20.020.)

City Counselor Ops.: 9357

McQuillin:

26.123 Loan businesses

26.120 Insurance companies; agents and brokers

8.20.050 Posting license.

All licenses provided for by this chapter shall be posted in the office or place of business of the person to whom the license has been issued. (1948 C., Ch. 13, § 6; 1960 C., § 616.050; 1994 C., § 8.20.050.)

8.20.060 To whom licenses prohibited.

No license shall be issued to any person who by the laws of the state is prohibited from engaging in any business named in this chapter. (1948 C., Ch. 13, § 7; 1960 C., § 616.060; 1994 C., § 8.20.060.)

8.20.080 Bonding companies.

All bonding companies operating in the City shall pay an annual license tax of two hundred dollars payable on or after the first day of November of each year. (1948 C., Ch. 13, § 9; 1960 C., § 616.080; 1994 C., § 8.20.080.)

Chapter 8.22

RESERVED

Editor's Note:

Ord. No. 71914, § 1, approved November 7, 2024, repealed former Ch. 8.22, §§ 8.22.010—8.22.060, in its entirety. Former Ch. 8.22 pertained to barbers, and derived from the 1948 Code, ch. 8, §§ 1, 2, 4—6; the 1960 Code, §§ 648.010, 648.020, 648.040—648.060; and the 1994 Code, §§ 8.22.010, 8.22.020, and 8.22.040—8.22.060.

Chapter 8.24

BATHHOUSES

Prior history: Ords. 56257, 46760; 1948 C. Ch. 9

RSMo:

RSMo 334.500 *et seq.* Professional physical therapists

City Counselor Ops.: 7791, 9443

McQuillin:

23.123a Massage parlors

Sections:

8.24.010 Definitions.

8.24.020 Establishment license—Required.

8.24.030 Establishment license—Application—Filing fee.

8.24.040 Establishment license—Application—Contents.

8.24.050 Masseur or masseuse license—Filing fee.

8.24.060 Masseur or masseuse license—Application.

8.24.070 Notice of hearing.

8.24.080 Conditions for issuance—Establishment license.

8.24.090 Conditions for issuance—Masseur or masseuse license.

8.24.110 Licenses—Revocation.

8.24.120 Facilities.

8.24.130 Operating regulations.

8.24.140 Inspection.

8.24.150 Transfer of licenses.

8.24.160 Existing businesses—Substitution for schooling.

8.24.180 Applicability of chapter.

8.24.190 Penalty for violation.

8.24.010 Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

A. "Massage" means any method of pressure on or friction against, or stroking, kneading, rubbing, tapping, pounding, vibrating, or stimulating of the external soft parts of the body with the hands or with the aid of any mechanical or electrical apparatus or appliance with or without such supplementary aids as rubbing alcohol, liniments, antiseptics, oils, powder, creams, lotions, ointments or other similar preparations commonly used in this practice.

B. "Massage establishment" means any establishment having a fixed place of business where any person, firm, association or corporation engages in or carries on or permits to be engaged in or carried on any of the activities mentioned in Subsection A.

C. "Masseur or masseuse" means any person who, for any consideration whatsoever, engages in the practice of massage as defined in this section.

D. "Employee" means any and all persons, other than the masseurs and masseuses, who render any service to the licensee, who receive compensation directly from the licensee, and who have no physical contact with customers and clients.

E. "Persons" means any individual, copartnership, firm, association, joint stock company, corporation or combination of individuals of whatever form or character.

F. "Public bath establishment" means any place that provides baths, showers or public washing facilities or massages, as defined by Subsection A and which may be equipped with appliances pertaining to physiotherapy treatments.

G. "Recognized school" means any school or institution of learning which has for its purpose the teaching of the theory, method, profession, or work of massage, which school requires a resident course of study not less than seventy hours to be given in not more than three calendar months before the student shall be furnished with a diploma or certificate of grad-

uation from such school or institution of learning following the successful completion of such course of study or learning and which school has been recognized and approved by an association of professional masseurs of the state. (1960 C., § 649.010; 1994 C., § 8.24.010; Ord. No. 70813, § 2(8.24.010), 7-16-2018; Ord. No. 56859, § 2(649.010), 1974.)

8.24.020 Establishment license—Required.

It shall be unlawful for any person to engage in, conduct or carry on or to permit to be engaged in, conducted or carried on, in or upon any premises in the City, the operation of a massage or public bath establishment as defined in Section 8.24.010, without first having obtained a license from the License Collector of the City after approval of the Board of Public Service. (1960 C., § 649.020; 1994 C., § 8.24.020; Ord. No. 70813, § 2(8.24.020), 7-16-2018; Ord. No. 56859, § 2(649.020), 1974.)

8.24.030 Establishment license—Application—Filing fee.

Every applicant for a license to maintain, operate or conduct a massage or public bath establishment shall file an application with the Board of Public Service and pay a filing fee of ten dollars which shall not be refundable. (1960 C., § 649.030; 1994 C., § 8.24.030; Ord. No. 70813, § 2(8.24.030), 7-16-2018; Ord. No. 56859, § 2(649.030), 1974.)

8.24.040 Establishment license—Application—Contents.

The application for a license to operate a massage establishment or public bath establishment shall set forth the exact nature of the massage or services to be administered, the proposed place of business and facilities therefor, and the name and address of each applicant.

In addition to the foregoing, any applicant for a license shall furnish the following information:

A. Written proof that the applicant is at least eighteen years of age;

B. Two portrait photographs at least two inches by two inches, and fingerprints;

C. Business, occupation, or employment of the applicant for the three years immediately preceding the date of application;

D. The massage, public bathhouse or similar business license history of the applicant; whether such person, in previously operating in this or any other City or state under license, has had such license revoked or suspended, the reason therefor, and the business activity or occupation subsequent to the action of suspension or revocation;

E. Any criminal convictions, except minor traffic violations;

G. The applicant shall pay an application fee for all administrative costs. (1960 C., § 649.040; 1994 C., § 8.24.040; Ord. No. 70813, § 2(8.24.040), 7-16-2018; Ord. No. 68570, § 1, 2-23-2010; Ord. No. 57071, § 1, 1975; Ord. No. 57002, § 1, 1975; Ord. No. 56859, § 2(649.040), 1974.)

8.24.050 Masseur or masseuse license—Filing fee.

Any person, including an applicant for a massage or public bath establishment license who engages in the practice of massage as defined in Section 8.24.010 shall file an application for a masseur or masseuse license with the Board of Public Service upon a form provided by the Board and shall pay a filing fee of ten dollars which shall not be refundable. (1960 C., § 649.050; 1994 C., § 8.24.050; Ord. No. 70813, § 2(8.24.050), 7-16-2018; Ord. No. 56859, § 2(649.050), 1974.)

8.24.060 Masseur or masseuse license—Application.

The application for a masseur or masseuse license shall contain the following:

A. Name and residence address;

B. Applicant's weight, height, color of hair and eyes, and fingerprints;

C. Written evidence that the applicant is at least eighteen years of age;

D. Business, occupation, or employment of the applicant for the three years immediately preceding the date of application;

E. Whether the person has ever been convicted of any crime except minor traffic violations. If any person mentioned in this subsection has been so convicted, a statement must be made giving the place and court in which the conviction was obtained and the sentence imposed as a result of the conviction;

F. The name and address of the recognized school in the art of massage attended, the date attended and a copy of the diploma or certificate of graduation awarded the applicant showing the applicant has successfully completed not less than seventy hours of instruction in the art of massage;

G. Two portrait photographs of at least two inches

by two inches and fingerprints of applicant. (1960 C., § 649.060; 1994 C., § 8.24.060; Ord. No. 70813, § 2(8.24.060), 7-16-2018; Ord. No. 56859, § 2(649.060), 1974.)

8.24.070 Notice of hearing.

When an application is filed for a massage or public bath establishment license under this chapter, the Board of Public Service shall fix a time and a place for a public hearing where applicant may present evidence upon the question of his application. Not less than ten days before the date of such hearing, the Board of Public Service shall cause to be posted a notice of the hearing in a conspicuous place on the property in which or on which the proposed massage or public bath establishment is to be operated. The applicant shall maintain the notice as posted for the required number of days. (1960 C., § 649.070; 1994 C., § 8.24.070; Ord. No. 70813, § 2(8.24.070), 7-16-2018; Ord. No. 56859, § 2(649.070), 1974.)

8.24.080 Conditions for issuance—Establishment license.

The Board of Public Service may approve issuance of a license within fourteen days following a hearing if all requirements for a massage or public bath establishment described in this chapter are met and may authorize the License Collector to issue a license to all persons who apply to perform massage services unless they find:

A. The operation as proposed by the applicant if permitted would not have complied with all applicable laws, including, but not limited to, the Building, Health, City Planning, Housing, Zoning, and Fire Codes of the City. In making the investigation, the Health Commissioner is authorized to require satisfactory proof that the applicant and the employees thereof are free from communicable diseases, and may, from time to time, require the applicant and attendants to submit to physical examinations and satisfactory laboratory examinations by the Health Commissioner during the period of the license;

B. That the applicant and any other person who will be directly engaged in the management and operation of a massage or public bath establishment has been convicted of:

1. A felony not involving sexual misconduct with children, obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution or pandering;

2. An offense involving sexual misconduct with children;

3. Obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution, or pandering.

The Board of Public Service in its discretion may authorize issuance of a license to any person convicted of any of the crimes in Subsection B.1., if it finds that the conviction occurred at least three years prior to the date of the application and the applicant has had no subsequent convictions. (1960 C., § 649.080; 1994 C., § 8.24.080; Ord. No. 70813, § 2(8.24.080), 7-16-2018; Ord. No. 56859, § 2(649.080), 1974.)

8.24.090 Conditions for issuance—Masseur or masseuse license.

The Board of Public Service may authorize issuance of a masseur or masseuse license within twenty-one days following application, unless he finds that the applicant for the masseur or masseuse license has been convicted of:

A. A felony not involving sexual misconduct with children, obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution or pandering;

B. An offense involving sexual misconduct with children;

C. Obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution, or pandering.

The Board of Public Service in its discretion may authorize issuance of a license to any person convicted of any of the crimes in this section if it finds that such conviction occurred at least three years prior to the date of the application and the applicant has had no subsequent convictions. (1960 C., § 649.090; 1994 C., § 8.24.090; Ord. No. 70813, § 2(8.24.090), 7-16-2018; Ord. No. 56859, § 2(649.080), 1974.)

8.24.110 Licenses—Revocation.

Any license issued for a massage or public bath establishment or a masseur or masseuse may be revoked or suspended by the Board of Public Service, after a public hearing before the Board of Public Service, where it is found that any of the provisions of this chapter are violated or where the licensee or any employee of the licensee, including a masseur or masseuse, has been convicted of any offense found in Section 8.24.090, or where the establishment is proven to be in

violation of any statute of the state or of any provision of this Code, relating to the Health Department or health regulations.

The Board of Public Service, before revoking or suspending any masseur or masseuse license, shall give the masseur or masseuse at least ten days' written notice of the examination into his conviction record and the opportunity for a public hearing before the Board of Public Service, at which hearing the Board of Public Service shall determine the relevant facts regarding the occurrence of the conviction. (1960 C., § 649.110; 1994 C., § 8.24.110; Ord. No. 70813, § 2(8.24.110), 7-16-2018; Ord. No. 56859, § 2(649.110), 1974.)

8.24.120 Facilities.

No license to conduct a massage or public bath establishment shall be issued unless an inspection by the Health Commissioner of the City or his authorized representative reveals that the establishment complies with each of the following minimum requirements:

A. Construction of rooms used for toilets, tubs, steam baths, and showers shall be waterproof with approved waterproof materials.

B. Toilet facilities shall be provided in convenient locations. When five or more employees and patrons of different sexes are on the premises at the same time, separate toilet facilities shall be provided. A single water closet per sex shall be provided for each twenty or more employees or patrons of that sex on the premises at any one time. Urinals may be substituted for water closets after one water closet has been provided. Toilets shall be designated as to the sex accommodated therein.

C. Lavatories or wash basins provided with both hot and cold running water shall be installed in either the toilet room or a vestibule. Lavatories or wash basins shall be provided with soap in a dispenser and with sanitary towels.

The Health Commissioner shall certify that the proposed massage or public bath establishment complies with all the requirements of this section and shall give or send the certification to the License Collector. (1960 C., § 649.120; 1994 C., § 8.24.120; Ord. No. 70813, § 2(8.24.120), 7-16-2018; Ord. No. 56859, § 2(649.120), 1974.)

8.24.130 Operating regulations.

Every portion of a massage or public bath establishment, including appliances, apparatus, and personnel shall be kept clean and operated in a sanitary condition.

The private parts of patrons must be covered by towels, cloths, or undergarments when in the presence of an employee, masseur, or masseuse. Any contact with a patron's genital area is strictly prohibited.

It shall be unlawful for any masseur or masseuse to massage any individual customer in a manner which is reasonably calculated to sexually stimulate or arouse the person being massaged. Intentional touching of the genitals of a person being massaged by a masseur or masseuse constitutes prima facie evidence of an attempt to sexually arouse or stimulate the person.

All massage or public bath establishments shall be provided with clean, laundered sheets and towels in sufficient quantity and shall be laundered after each use thereof and stored in an approved, sanitary manner.

Wet and dry heat rooms, shower compartments, and toilet rooms shall be thoroughly cleaned each day the business is in operation. Bathtubs shall be thoroughly cleaned after each use.

No proprietor, lessee or manager of any massage or public bath establishment obtaining a license under this chapter shall permit any disorderly or indecent conduct, or permit any indecent act, or permit such house to become a place for thieves, prostitutes, male or female procurers, vagrants, or any other disorderly person's resort. No male or female procurers, vagrants, thieves or persons of known bad character shall be attendants or employees of massage or public bath establishments.

No massage or public bath establishment granted a permit under provisions of this chapter shall place, publish, or distribute or cause to be placed, published, or distributed any advertising matter that depicts any portion of the human body that would reasonably suggest to prospective patrons that any service is available other than those services as described in Section 8.24.010. (1960 C. 649.130; 1994 C., § 8.24.130; Ord. No. 70813, § 2(8.24.130), 7-16-2018; Ord. No. 56859, § 2(649.130), 1974.)

8.24.140 Inspection.

The Police Department and the Health Department shall from time to time and at least twice a year, make an inspection of each massage or public bath establishment in the City for the purposes of determining that the provisions of this chapter are complied with. The inspections shall be made at reasonable times and in a reasonable manner. It shall be unlawful for any

licensee to fail to allow the inspection officer access to the premises or to hinder the officer in any manner. (1960 C., § 649.140; 1994 C., § 8.24.140; Ord. No. 70813, § 2(8.24.140), 7-16-2018; Ord. No. 56859, § 2(649.140), 1974.)

8.24.150 Transfer of licenses.

No license shall be transferable except with the written consent of the Board of Public Service; provided, however, that upon the death or incapacity of the licensee the massage or public bath establishment may continue in business for a reasonable period of time to allow for an orderly transfer of license. (1960 C., § 649.150; 1994 C., § 8.24.150; Ord. No. 70813, § 2(8.24.150), 7-16-2018; Ord. No. 56859, § 2(649.150), 1974.)

8.24.160 Existing businesses—Substitution for schooling.

Applicants for a masseur or masseuse license may substitute one year's continuous experience as a masseur or masseuse in lieu of the requirement of a diploma or certificate of graduation from a recognized school or other institution of learning wherein the method and work of massage is taught. The masseur or masseuse must obtain an affidavit attesting to such experience from the owner of the establishment where the continuous year of experience occurred. (1960 C., § 649.160; 1994 C., § 8.24.160; Ord. No. 70813, § 2(8.24.160), 7-16-2018; Ord. No. 56859, § 2(649.160), 1974.)

8.24.180 Applicability of chapter.

This shall not apply to hospitals, nursing homes, sanitaria, or persons holding an unrevoked certificate to practice the healing arts under the laws of the state or to persons working under the direction of any such persons or in any such establishments. (1960 C., § 649.180; 1994 C., § 8.24.180; Ord. No. 70813, § 2(8.24.180), 7-16-2018; Ord. No. 56859, § 2(649.180), 1974.)

8.24.190 Penalty for violation.

Every person, except those persons who are specifically exempted by this chapter, whether acting as an individual, owner, employee of the owner, operator or employee of the operator, or whether acting as a mere helper for the owner, employee or operator, or acting as a participant or worker in any way, who gives massages or conducts a massage establishment without first obtaining a permit and paying a license fee to do so from the City or shall violate any of the provisions of this chapter shall, upon conviction, be punished by a fine not to exceed five hundred dollars or by imprisonment for a period not to exceed ninety days or by both fine and imprisonment. (1960 C., § 649.190; 1994 C., § 8.24.190; Ord. No. 70813, § 2(8.24.190), 7-16-2018; Ord. No. 56859, § 2(649.190), 1974.)

Chapter 8.25

BED AND BREAKFAST ESTABLISHMENTS

Sections:

8.25.010 License—Required.
8.25.020 Application Contents.
8.25.030 Rules, regulations and requirements.
8.25.040 Applications—Notices—Hearings.
8.25.050 License approval—Generally.
8.25.060 Protests against licenses or applications—When and how initiated.
8.25.070 Protest petitions—Contents—Time for collection of signatures.
8.25.080 Hearing on protest—Notice—Procedure.
8.25.090 Protests—Necessity of majority of signatures on petition protesting continuation of license—Effect.
8.25.100 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.
8.25.110 Extension of protested license.
8.25.120 Withdrawal of signatures from consent or protest petitions.

8.25.010 License—Required.

No person shall own, operate or maintain a bed and breakfast homestay, a bed and breakfast guesthouse, or a bed and breakfast inn as defined in the Zoning Code without obtaining a permit from the Board of Public Service and a graduated business license from the License Collector. (1994 C., § 8.25.010; Ord. No. 70813, § 3(8.25.010), 7-16-2018; Ord. No. 62566, § 1, 1992.)

8.25.020 Application Contents.

No person shall own, operate or maintain a bed and breakfast homestay, a bed and breakfast guesthouse or a bed and breakfast inn in an area not within

a bed and breakfast district without first submitting the following application to the Board of Public Service, which application shall contain:

A. Name and address of owner of premises and if a bed and breakfast inn the name and address of the manager also. All changes shall be reported within thirty days after the change.

B. A diagram of the premises clearly showing all rooms in the premises and their proposed uses. All changes must be reported within thirty days after the change.

C. Location and number of any off-street parking spaces.

D. Address and manager of any other bed and breakfast establishments in the City-owned or -operated by the applicant.

E. Any additional information as may be required under the rules and regulations of the Board of Public Service and/or as determined by the President of the Board of Public Service. (1994 C., § 8.25.020; Ord. No. 70813, § 3(8.25.020), 7-16-2018; Ord. No. 62566, § 2, 1992.)

8.25.030 Rules, regulations and requirements.

The following rules, regulations and requirements shall apply to the designated establishments, and no person shall own, operate, manage, or maintain an establishment that violates said rules, regulations and requirements.

A. *Bed and Breakfast Homestay.*

1. No health, building or occupancy inspection or permits or certificate of inspection for change of guests required.

2. No employees permitted except for periodic guestroom cleaning service.

3. No exterior signage permitted, except if the homestay is within a bed and breakfast district, the provisions of Subsection B.2 of this section shall apply.

4. Owner must occupy and manage bed and breakfast homestay and must be present while it is in operation.

5. No guestrooms may contain cooking facilities.

6. Maximum stay for each guest shall be 14 consecutive days.

7. Guestbook must be maintained and open to inspection by the City, which gives guests' names, home addresses, dates and rooms occupied.

8. No other business may be operated from premises, including, but not limited to, catering, wedding receptions or private parties.

9. Interior residential features must be retained in a manner that will allow reconversion to a residential use.

10. The use shall not be detrimental to the neighborhood.

B. *Bed and Breakfast Guesthouse.*

1. One off-street parking space for every two guest rooms is required, unless waived by the Board of Public Service for good cause shown.

2. One attached non-illuminated or indirectly illuminated exterior sign no larger than four square feet may be permitted.

3. Occupancy permit required.

4. Commercial kitchen not required, but inspection of kitchen required.

5. No guestrooms may contain cooking facilities.

6. Owner must occupy and manage bed and breakfast and must be present while it is in operation.

7. Maximum stay for each guest shall be 14 consecutive days.

8. Guestbook must be maintained, and open to inspection by City, which gives guests' names, home address, dates and rooms acquired.

9. No other business may be operated from premises, including, but not limited to, catering, wedding receptions or private parties.

10. All building and health code requirements must be met.

11. The use shall not be detrimental to the neighborhood.

12. Interior residential features must be retained in a manner that will allow reconversion to a residential use.

C. *Bed and Breakfast Inn.*

1. Must meet requirements of Subsections B.1 through 3, 7, 8, 10 and 11 of this section.

2. Commercial kitchen, unless waived by the Board of Building Appeals for good cause shown, must conform to the requirements of the St. Louis Building and Fire Prevention Codes. (1994 C., § 8.25.030; Ord. No. 70813, § 3(8.25.030), 7-16-2018; Ord. No. 62566, § 3, 1992.)

8.25.040 Applications—Notices—Hearings.

A. Applications to operate a bed and breakfast establishment may be obtained from the Secretary of the Board of Public Service.

B. After the filing of the completed application, the Board of Public Service shall fix a date for a hearing on the application.

C. The Board shall, at least fifteen (15) days before the date for which such hearing is scheduled, cause to be mailed or delivered to the applicant and to the Alderman of the ward in which the licensed premises would be located and to the Police Department, the notice of the time, place and date of said hearing. If the proposed use also requires the issuance of a conditional use permit, the procedures required by Section 26.80.10 of the Zoning Code shall be conducted concurrently with the procedures required by this chapter, so that in no case shall two (2) separate Board of Public Service hearings be required. In addition, the Zoning Administrator shall cause a placard containing the words "HEARING ON BED AND BREAKFAST ESTABLISHMENT," printed in bold black letters at least 1½ inches in height, to be placed at each end of the block on the side of the street where the applicant proposes to locate the establishment, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the preceding sentence, the person posting the placards shall place the placards in such manner as to give the greatest notice to passersby of the hearing on the application. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the name of the applicant, the address of the premises proposed to be licensed, and the type of license applied for. Applicants shall deposit cash or its equivalent with the Board in sufficient amount, as set by said Board to pay the costs of placarding and mailing required by this subsection. Money deposited with the Board for this purpose shall be deposited by the Board in a special account established by the Board for such purpose. Such account shall be held in the name of the Board who shall use the funds held therein only for the purposes specified in this section. Any resulting deficit shall be charged back, and any overage shall be refunded, to the applicant.

D. At such hearing, the applicant shall be entitled to produce testimony under oath and to be represented by counsel, and the Board shall have the power to subpoena witnesses and to take testimony under oath pertaining to all matters connected with the application. Any interested person in the matter shall have the right to testify at the hearing. The Board may continue all or part of an application hearing if necessary to conclude the investigation of an application. (1994 C., § 8.25.040; Ord. No. 70813, § 3(8.25.040), 7-16-2018; Ord. No. 62566, § 4, 1992.)

8.25.050 License approval—Generally.

If, after holding a hearing on the application the Board shall find that the applicant meets all requirements of the Ordinances of the City, the Board shall approve the issuance of a license to the applicant, permitting him to conduct such business for a period of one year from the date of issuance of the license, unless the license is revoked or canceled for cause before the expiration of such time. (1994 C., § 8.25.050; Ord. No. 70813, § 3(8.25.050), 7-16-2018; Ord. No. 62566, § 5, 1992.)

8.25.060 Protests against licenses or applications—When and how initiated.

A. A protest against issuance, the renewal or continuation of a bed and breakfast establishment license issued pursuant to this chapter shall be initiated by submission to the Board of Public Service of a written letter of protest signed by either ten (10) or more registered voters residing or conducting business, or ten (10) or more persons owning property, within the petition circle of the establishment which is the subject of the protest. If there are less than twenty (20) property owners within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of property owners residing within the petition circle. If there are less than twenty (20) persons who are registered voters residing or conducting business within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of the persons who are registered voters residing or conducting business within the petition circle. Such letter shall contain the name and address of the licensed premises or proposed licensed premises which is the subject of the protest, the type of license being protested, and the name of the person who shall serve as the protest representative. Upon verifying that there are sufficient signatures on the protest letter to initiate a protest, the Secretary of the Board of Public Service shall issue protest petitions to the protest representative. He shall also notify the

licensee or applicant whose license or application is the subject of the protest, the Alderman for the ward in which the licensed premises is or would be located and the Police Department that a protest has been initiated against the license or application. Such notice shall contain an explanation of the protest procedures as established by this chapter and title, and by the rules and regulations of the Board of Public Service. If the protest is against renewal or continuation of a license notice shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Board of Public Service.

B. A protest shall not be initiated against renewal more than 45 days, nor less than 14 days, prior to the date on which the existing license for the premises which is the subject of the protest is scheduled to expire. A protest may be initiated against continuation of a license at any time during the term of the license, however, any protest letter submitted to the Board of Public Service less than 45 days prior to the date on which the existing license for the premises which is the subject of the protest is scheduled to expire shall be treated as a protest against renewal of the license. A protest may be initiated against an application for issuance of a license at any time up to the time set for the hearing on such application. The application hearing shall not be postponed because of the filling of a protest against such application; however, the Board of Public Service shall make no decision concerning whether to issue the license applied for until after the conclusion of the protest bearing provided for by the provisions of this chapter. No protest may be initiated against the continuation of a license for a period of six months after the Board has denied, after a hearing, a previous protest against such license. (1994 C., § 8.25.060; Ord. No. 70813, § 3(8.25.060), 7-16-2018; Ord. No. 62566, § 6, 1992.)

8.25.070 Protest petitions—Contents—Time for collection of signatures.

A. The Board of Public Service shall promulgate a protest petition form. There shall be a heading on each page of the petition which shall: (1) identify by trade name and address the licensed premises or proposed licensed premises which is the subject of the protest; (2) give the name of the licensee or applicant; (3) state that persons signing the petition are supporting the protest filed against the license or application of the licensee or applicant for the premises named on the petition; and (4) contain such additional information as may be required under the rules and regulations of the Board. No signature appearing on a protest petition shall be considered valid unless the name and address of the person who signed the petition is printed on the face of the petition next to his signature.

B. The Board of Public Service shall not, except for good cause shown, accept any protest petition submitted more than thirty days from the date on which the protest petitions were issued to the protest representatives; except that where the thirtieth day after the date on which the protest petitions were issued falls on a Saturday, Sunday or holiday, the Board shall accept protest petitions filed on the next working day thereafter. (1994 C., § 8.25.070; Ord. No. 70813, § 3(8.25.070), 7-16-2018; Ord. No. 62566, § 7, 1992.)

8.25.080 Hearing on protest—Notice—Procedure.

A. After the last date on which protest petitions may be submitted, the Board shall fix a date for a hearing on the protest. Such hearing shall be held not less than twenty, nor more than thirty, days following the last date on which protest petitions may be submitted. The Board shall have power to continue the hearing for good cause. The Board shall not schedule a hearing for a protest against continuation of a license, and shall summarily dismiss such protest, where no protest petitions are submitted to him prior to the closure date for submission of protest petitions.

B. The Board shall, at least ten days prior to the date on which the protest hearing is scheduled, cause notice of the time, place and date of the hearing to be served on the licensee or applicant whose license or application is the subject of the protest. If the protest is against renewal or continuation of a license, notice of the protest hearing shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Board of Public

Service. The Board shall also, at least ten days prior to the date on which a protest hearing is scheduled, cause notice of the time, place and date of such hearing to be served upon the protest representative, the Alderman of the ward in which the licensed premises is or would be located, and the Police Department. Service of the notice upon the protest representative shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the protest representative on the written letter of protest. In addition, the Board shall cause a placard containing the words "HEARING ON PROTEST AGAINST BED AND BREAKFAST ESTABLISHMENT LICENSE IN THIS BLOCK," printed in bold black letters at least 1½ inches in height, to be placed at each end of the block on the side of the street where the licensed premises or the proposed licensed premises which are the subject of the protest hearing is or would be located, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the previous sentence, the person posting the placards shall place the placards in such manner as to give the greatest notice to passersby of the protest hearing. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the trade name and address of the licensed premises or premises proposed to be licensed, the name of the licensee or applicant whose license or application is the subject of the protest, and the type of license which is the subject of the protest. Neither the protest representative nor anyone else signing a protest letter or petition shall be liable for the costs of said placarding.

C. At the protest hearing, both the protest representative and the licensee or applicant whose license or application is the subject of the protest shall be entitled to produce testimony under oath and to be represented by counsel, and the Board shall have the power, on his own motion, to subpoena witnesses and to testimony under oath pertaining to all matters connected with the protest. The Alderman for the Ward in which the premises which is the subject of the protest is located, together with the Police Department, shall have the right to be heard at the hearing.

D. The protest hearing shall be a bifurcated proceeding. During the first phase of the hearing, the Board shall consider evidence concerning whether the protest petitions submitted to him contain the signatures of a valid majority of either: (1) persons who are registered voters who reside or conduct business within the petition circle of the licensed premises or proposed licensed premises which is the subject of the protest; or (2) persons owning property within said petition circle. The Board shall also consider during the first phase of the hearing any testimony offered concerning the sufficiency of the written protest letter which initiated the protest, including, but not limited to, evidence concerning whether the letter contained sufficient signatures to initiate the protest. After conclusion of the first phase of the hearing the Board shall make a decision as to whether the protest petitions submitted to him contain a valid majority of either persons who are registered voters who reside or conduct business, or persons owning property, within the petition circle. He need not, prior to initiation of the second phase of the hearing, make any determination as to the sufficiency of the written protest letter. During the second phase of the hearing, he shall consider evidence concerning whether issuance, renewal or continuation of the license which is the subject of the protest would be detrimental to the neighborhood in which the licensed premises is or would be located. (1994 C., § 8.25.080; Ord. No. 70813, § 3(8.25.080), 7-16-2018; Ord. No. 62566, § 8, 1992.)

8.25.090 Protests—Necessity of majority of signatures on petition protesting continuation of license—Effect.

A. A protest against continuation of a license may only be sustained by the Board if the protest petitions submitted to it to protest such continuation contain the signatures of either a majority of the persons who are registered voters residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle. If, after the first phase of the hearing is completed, the Board determines that the protest petitions submitted to it in protest of the continuation of a license contain the signatures of neither a majority of the persons who are registered voters residing or conducting business within the petition circle of the licensed premises which is the subject of the protest nor a majority of the persons owning property within such petition circle then it shall deny the protest and shall not consider evidence of whether continuation of the license would be detrimental to the neighborhood in which the licensed premises is located.

B. If the Board determines, after the first phase of the hearing is completed, that protest petitions submit-

ted to it to protest an application for a license contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the proposed licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle, then the Board shall sustain the protest and refuse to grant the license applied for, regardless of any evidence concerning detriment to the neighborhood. (1994 C., § 8.25.090; Ord. No. 70813, § 3(8.25.090), 7-16-2018; Ord. No. 62566, § 9, 1992.)

8.25.100 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.

A. If the Board determines after the first phase of the protest hearing that the protest petitions submitted to it contain the signatures of either: (1) a majority of the persons who are registered voters residing or conducting business within the petition circle of the licensed premises which is the subject of the protest; or (2) a majority of the persons owning property within such petition circle, it shall sustain the protest unless the licensee shows by a preponderance of the evidence submitted at the hearing that renewal or continuation of the license would not be detrimental to the neighborhood in which the licensed premises is located. If the Board determines after the first phase of the protest hearing that the protest petitions submitted to it do not contain the signatures of either a majority of the persons who are registered voters residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle, the Board shall deny the protest, unless the protesters show by a preponderance of the relevant evidence submitted at the hearing that issuance or renewal of the license would be detrimental to the neighborhood in which the licensed premises is or would be located.

B. If the Board sustains a protest against issuance of a license it shall refuse to grant such license to the person applying therefor. If it sustains a protest against renewal of a license such license shall not be revoked, but the Board shall refuse to renew such license after it expires. If the Board sustains a protest against continuation of a license it shall cancel such license effective one month after any decision is filed upholding such protest. If the license expires by operation of law before it can be canceled it shall not be renewed. (1994 C., § 8.25.100; Ord. No. 70813, § 3(8.25.100), 7-16-2018; Ord. No. 62566, § 10, 1992.)

8.25.110 Extension of protested license.

Where a protest has been filed against continuation or renewal of a license and the license expires prior to a decision by the Board on the protest, the Board shall grant an extension of the license. If the Board sustains a protest, the extension shall expire on the date on which the decision on the protest is issued. (1994 C., § 8.25.110; Ord. No. 70813, § 3(8.25.110), 7-16-2018; Ord. No. 62566, § 11, 1992.)

8.25.120 Withdrawal of signatures from consent or protest petitions.

Any person who has signed a neighborhood protest petition may withdraw his signature from the petition by submitting a letter to the Board requesting withdrawal prior to the date set for the hearing on the protest or by requesting withdrawal in person at the hearing. The Board may also allow a person to withdraw his signature from a protest petition if it finds, based upon a preponderance of evidence, that the circulator of the petition threatened or coerced such person or that the circulator made a material misrepresentation of fact concerning the licensed premises or proposed licensed premises to such person. (1994 C., § 8.25.120; Ord. No. 70813, § 3(8.25.120), 7-16-2018; Ord. No. 62566, § 12, 1992.)

Chapter 8.26

BILLIARD AND POOL ROOMS

Sections:

8.26.010 Billiard table keeper defined.
8.26.030 Premises license—Required—Definitions.
8.26.040 Premises license—Application.
8.26.070 Hearing.
8.26.080 Approval.
8.26.090 Regulations.
8.26.100 Renewals.
8.26.110 Revocation—By neighborhood petition.
8.26.120 Revocation—For violations.
8.26.130 Rules and regulations.
8.26.150 When issuance prohibited—Notice of revocation.

8.26.010 Billiard table keeper defined.

"Keeper of a billiard table" is one who possesses, keeps or has the control or management of a billiard table, whereon others are permitted to play, and for the use of which or privilege of playing thereon, or for the hire thereof, any money or its equivalent, or any check or counter in lieu of money, shall be paid or received.

All billiard tables within the City shall be held and taken to be so kept, and to come within the meaning and province of this chapter, except such as may be kept within dwelling houses for the owner's recreation and not for the purpose of letting the same to others to play thereon for money, or anything representing or in lieu of money, or for wagers or bets. (1948 C., Ch. 13, § 100; 1960 C., § 724.010; 1994 C., § 8.26.010; Ord. No. 70813, § 4(8.26.010), 7-16-2018.)

City Counselor Ops: 9250

8.26.030 Premises license—Required—Definitions.

In addition to the license fee required for each billiard or pool table, and in order to regulate billiard or pool table premises and to protect the safety and welfare of the residents of the City, the keeper of the billiard or pool tables shall also obtain a license to operate or maintain a billiard or pool table premises. The license required for the premises may be issued after an application with all other necessary items has been approved by a majority of the Board of Public Service. The license shall be on a yearly basis from the date of issuance and shall be nontransferable. A separate license is required for each premises, and a licensee shall not be issued more than three licenses.

"Premises" as used in this chapter means a single room within a structure or building, equipped with one or more billiard or pool tables which may be used by the public for a fee.

"Keeper of a billiard or pool table" means any person, firm or corporation whose primary business is offering to the public the use of a billiard or pool table for a charge or fee. (1960 C., § 724.030; 1994 C., § 8.26.030; Ord. No. 70813, § 4(8.26.030), 7-16-2018; Ord. No. 55051, § 1, 1968.)

8.26.040 Premises license—Application.

Every person applying for a billiard or pool table premises license shall file a written application and drawing with the Board of Public Service setting forth his qualifications as follows:

A. Name, address, birth date, and place of birth;

B. His employment background for twelve years prior to the date of application and whether any previous business or occupational license, including any alcoholic beverage license and billiard or pool table license has been revoked and for what reasons;

C. Complete educational background;

D. A list of any court convictions other than ordinary traffic violations;

E. A statement as to the applicant's residence and the length of time the applicant has resided in Missouri and in the City;

F. Other facts relevant to the general personal history of the applicant as he or the Board of Public Service shall find necessary to a fair determination of the applicant's eligibility for a license;

G. The applicant shall also file a drawing of the proposed premises showing the dimensions thereof together with the proposed number and location of the billiard or pool tables, and also indicating the location of all doorways, windows, lights, entrances, and exits of the premises and the restroom facilities, if any, and the drawing shall remain as part of the record concerning the application and premises. (1960 C., § 724.040; 1994 C., § 8.26.040; Ord. No. 70813, § 4(8.26.040), 7-16-2018; Ord. No. 55051, § 2, 1968.)

8.26.070 Hearing.

After filing of the application and other additional information as may be required by the Board of Public Service, it shall set a date for the hearing on the application within a reasonable time after the filing of the application or the last information, and shall give the applicant written notice of the date of the hearing. At the hearing, the applicant shall be entitled to produce testimony under oath and the Board of Public Service shall have the authority to subpoena witnesses and to take their testimony under oath pertaining to all matters connected with the application, and any interested person in the matter shall have the right to give testimony. (1960 C., § 724.070; 1994 C., § 8.26.070; Ord. No. 70813, § 4(8.26.070), 7-16-2018; Ord. No. 55051, § 5, 1968.)

8.26.080 Approval.

A majority of the Board of Public Service in its sound discretion may approve the application after hearing, if it is satisfied that the applicant is of good moral character and that the applicant has given substantial evidence that he will be able to operate the premises in compliance with all regulations and laws

governing the premises, and the applicant is a resident of the state, and the proposed premises would not be detrimental to the locality. A majority of the Board of Public Service may propose or require changes in the premises in regard to the doorways, windows, lights, entrances, exits and toilet facilities, and in regard to the number and location of billiard or pool tables, before granting its approval of the application. (1960 C., § 724.080; 1994 C., § 8.26.080; Ord. No. 70813, § 4(8.26.080), 7-16-2018; Ord. No. 55051, § 6, 1968.)

8.26.090 Regulations.

The following regulations shall apply to all licensed premises for the keeping of billiard or pool tables, and a licensee of the premises is at all times responsible for the orderly conduct of his business and the acts of any person, employee or agent in the operation of the billiard or pool table premises:

A. All billiard or pool table premises shall be open only between the hours of ten a.m. and twelve midnight, Central Standard Time or Daylight Saving Time, whichever shall be in effect, on Mondays through Saturdays, inclusive. On Sundays the billiard or pool table premises shall be open only between the hours of twelve noon and six p.m. Central Standard Time or Daylight Saving Time, whichever shall be in effect. All premises shall have all patrons removed and the doors locked by the closing times mentioned herein.

B. All premises for the keeping of billiard or pool tables shall be kept clean and well-lighted so that the rear of the premises is plainly visible from the front of the premises.

C. No licensee of the premises shall suffer or permit any loud noises, boisterous or disorderly conduct on the premises or on any grounds of the premises, and he shall prevent the loitering of persons on the premises or the grounds thereof.

D. The consumption, keeping or carrying of any alcoholic beverage as defined in Chapter 14.01 or non-intoxicating beer as defined in Chapter 14.01 is expressly prohibited on any billiard or pool table premises.

E. A licensee shall not increase the number of billiard or pool tables over the number specified in the drawing filed with the Board of Public Service; provided, however, the Board may authorize such increase upon application by the licensee.

F. Anything herein to the contrary notwithstanding, the regulations contained and set forth in Subsections A and D of this section shall not apply to any billiard or pool table premises (the "premises") if:

1. Such premises forms a part of and is physically connected to a business or business operation which is licensed (or acquires a license) to sell, dispense or otherwise dispose of alcoholic beverages for consumption on the premises of such business or business operation, including, without limitation, alcoholic beverages defined in Chapter 14.01, or non-intoxicating beer as defined in Chapter 14.01; and

2. At the time of issuance of the "premises license" under and pursuant to this chapter, there is no dwelling unit, as defined in Section 26.08.115, within a distance of one thousand (1,000) feet from the "premises" [for the purposes hereof, a dwelling unit shall exclude a hotel, as defined in Section 26.08.260]; and

3. The premises, at the time of issuance of the premises license, is located in either a "K" Unrestricted district (as defined in Chapter 26.60) or an "H" Commercial District (as defined in Chapter 26.48); and

4. The premises is part of an area of not less than thirty (30) acres which is subject to a development plan as defined in Section 353.020 of the Missouri Revised Statutes. (1948 C., Ch. 46, § 48; 1960 C., § 724.090; 1994 C., § 8.26.090; Ord. No. 70813, § 4(8.26.090), 7-16-2018; Ord. No. 61762, § 1, 1990; Ord. No. 55051, § 7, 1968.)

RSMo:

RSMo 294.040 (2016) Minors under sixteen not to work in certain occupations

Cases:

In absence of any showing that petition signers pursuant to Ord. 55051 §§ 9 and 10 were either owners, residents or persons conducting business within prescribed distance of billiard parlor and of the total number of qualified persons within prescribed area so that a majority could be calculated, board of public service lacked jurisdiction to revoke billiard parlor license. *State ex rel. Tolliver v. Board of Public Service,* 453 S.W. 2d 622 (1970).

8.26.100 Renewals.

A licensee of a billiard or pool table premises who has obtained a license under this chapter may obtain a renewal of his license by filing a renewal application as provided by the Board of Public Service, which shall contain the signed statement of the licensee that there has been no change in the information as provided on the original application and drawing. If, however, such change has occurred, the applicant for a renewal license must state the changes. A majority of the Board may

approve the application for renewal without the appearance of the licensee before the Board; provided, however, that the Board may require the licensee to appear before it and to furnish additional information it deems necessary.

Whenever a majority of the Board of Public Service for good cause refuses to renew a license, it shall notify the licensee of its decision and the reasons therefor and shall further inform the licensee that he is entitled to a formal hearing before the Board concerning the renewal. The licensee must file a request for a formal hearing within fourteen days after the date of the Board's refusal to renew. Thereafter, the Board's refusal to renew shall be final and nonappealable. After a formal hearing, a majority of the Board may affirm or modify its decision as it deems necessary. (1960 C., § 724.100; 1994 C., § 8.26.100; Ord. No. 70813, § 4(8.26.100), 7-16-2018; Ord. No. 55051, § 8, 1968.)

8.26.110 Revocation—By neighborhood petition.

Whenever a majority of the persons, if any, owning property, and a majority of persons who are registered voters, if any, occupying premises or conducting any business on the main surface floor of premises within a prescribed petition circle drawn by a radius of three hundred feet plus one-half of the width of the front of the billiard or pool table premises from the center of the premises projected to the street, shall sign and thereafter file a written petition before the Board of Public Service demanding the revocation of the license or licenses which have been issued for billiard or pool table premises within the above-mentioned area, the license or licenses shall be revoked and be held null and void if a majority of the Board of Public Service finds that the petition is in the form prescribed in this section. (1960 C., § 724.110; 1994 C., § 8.26.110; Ord. No. 70813, § 4(8.26.110), 7-16-2018; Ord. No. 55051, § 1, 1968.)

8.26.120 Revocation—For violations.

In addition to the revocation by neighborhood petition, a majority of the Board of Public Service may suspend any or all of a licensee's licenses for a period of not more than thirty days or any portion thereof, or may revoke any or all of a licensee's licenses for any billiard or pool table premises whenever it is found that the licensee has obtained any license through misrepresentation or fraud or that the licensee has disregarded or violated any of the regulations or laws for billiard or pool table premises. The licensee shall be notified in writing of the charges or infractions. These shall be mailed to the licensee at the address of any of his licensed premises or at the last known residence of the licensee. A public hearing shall be held before the Board of Public Service at a specified time. At the hearing, evidence under oath shall be heard concerning the charges or infractions and the licensee or his attorney may present evidence in answer or defense thereto. Evidence or infractions or violations other than those specified in writing to the licensee may also be presented at the hearing; provided, however, that the licensee shall be given reasonable additional time, if he so requests, to prepare his answer or defense to additional infractions or violations. The Board of Public Service shall render a decision within fourteen days after completion of the formal hearing and shall mail a copy of its decision to the licensee. Appeals from the decision of the Board may be taken by the licensee as provided by law. Any person whose license has been revoked shall not again be allowed to obtain a license to keep a billiard or pool hall for two years next thereafter. (1960 C., § 724.120; 1994 C., § 8.26.120; Ord. No. 70813, § 4(8.26.120), 7-16-2018; Ord. No. 55051, § 10, 1968.)

8.26.130 Rules and regulations.

The Board of Public Service is authorized to adopt all necessary forms and to enact, promulgate and enforce all rules and regulations necessary for the reasonable interpretation and enforcement of this chapter. (1960 C., § 724.130; 1994 C., § 8.26.130; Ord. No. 70813, § 4(8.26.130), 7-16-2018; Ord. No. 55051, § 11, 1968.)

8.26.150 When issuance prohibited—Notice of revocation.

The License Collector is prohibited from issuing a license for pool or billiard tables and keepers thereof until a license has been issued by the Board of Public Service as provided in this chapter.

Should any license issued under this chapter be revoked, the License Collector shall immediately upon receipt of the notice of revocation, revoke the license for pool or billiard tables and keepers thereof by written notice addressed to the licensee at the address of any of his licensed premises or at his last known residence.

Whenever a license shall be revoked by the Board of Public Service, the Secretary of the Board of Public Service shall immediately notify the License Collector of the revocation.

Whenever a license issued by the Board of Public Service is revoked, the licensee shall not be entitled to any rebate or refund of fees paid to the License Collector. (1960 C., § 724.150; 1994 C., § 8.26.150; Ord. No. 70813, § 4(8.26.150), 7-16-2018; Ord. No. 55051, § 13, 1968.)

Chapter 8.28

BOTTLE REGISTRATION

Sections:

8.28.010 **Description—Filing—Publication.**

8.28.020 **Register's book of record.**

8.28.030 **Unlawful uses—Enumerated.**

8.28.040 **Unlawful uses—Prima facie evidence.**

8.28.050 **Deposit on bottles.**

8.28.010 Description—Filing—Publication.

Persons engaged in manufacturing, bottling or selling liquids in vessels with their name and the word "registered" branded, engraved, blown or otherwise produced thereon, may file in the office of the City Register of the City a description of the name so used by them and may publish the description once in each of four successive weeks in a newspaper published in the City. (1948 C., Ch. 12, § 1; 1960 C., § 659.010; 1994 C., § 8.28.010.)

RSMo:

RSMo 417.250 (2016) Description of mark, where filed—notice of use

8.28.020 Register's book of record.

It shall be the duty of the City Register to keep a separate book of record, in which shall be kept, properly indexed, the description referred to in the Section 8.28.010, together with proof of the publication of the description, properly verified before a notary public. A copy of the description and proof of publication duly certified by the Register shall be competent evidence of the filing and publication. (1948 C., Ch. 12, § 2; 1960 C., § 659.020; 1994 C., § 8.28.020.)

RSMo:

RSMo 417.260 (2016) Duties of recorder and secretary of state—fees

8.28.030 Unlawful uses—Enumerated.

Whoever fills with a liquid, any vessel so marked or distinguished as provided by Section 8.28.010, with intent to sell the same, the description of which has been filed and published as provided in Section 8.28.010, or defaces, erases, covers up or otherwise removes or conceals any name or the word "registered" thereon, or sells, buys, gives, takes or otherwise disposes of or traffics in any such vessel, without the written consent of, or unless the same has been purchased from, the person whose name is in or upon the vessel so filled, defaced, trafficked in or otherwise disposed of, shall be guilty of a misdemeanor. (1948 C., Ch. 12, § 3; 1960 C., § 659.030; 1994 C., § 8.28.030.)

RSMo:

RSMo 417.270 (2016) Penalty for violation

8.28.040 Unlawful uses—Prima facie evidence.

The use by any person engaged in manufacturing, bottling or selling liquids, of a vessel marked or distinguished, the description of which has been filed and published as provided in Section 8.28.010, without the written consent of, or the buying, selling, disposing of or trafficking in such vessels by any person without written consent or purchase; or the possession by any junk dealer or dealer in secondhand articles of any such vessels without the written consent of or purchase from the owner thereof, shall be prima facie evidence of unlawful use, possession of or traffic in the same. (1948 C., Ch. 12, § 4; 1960 C., § 659.040; 1994 C., § 8.28.040.)

RSMo:

RSMo 417.280 (2016) What constitutes evidence

8.28.050 Deposit on bottles.

The requiring, taking or accepting of any deposit for any purpose upon any vessel registered under Section 8.28.010 shall not be deemed to constitute a sale of such vessel, either conditional or otherwise, in any proceeding under this chapter. (1948 C., Ch. 12, § 5; 1960 C., § 659.050; 1994 C., § 8.28.050.)

RSMo:

RSMo 417.290 (2016) Acceptance of deposit does not constitute sale

Chapter 8.28A

BRICK DEALERS

Prior ordinance history: Ord. 59429

Sections:

8.28A.010 **Definitions.**

8.28A.020 **Brick dealer's permit—Required.**

8.28A.030 **Brick dealer's permit—Application—Issuance.**

8.28A.040 Brick dealer's permit—Revocation.
8.28A.050 Photograph of brick seller required.
8.28A.060 Demolition permit requirements.
8.28A.070 Register of transactions required.
8.28A.080 Purchases from minors—Hours of operation.
8.28A.090 Removal and transportation of bricks.
8.28A.100 Penalty for violation.

8.28A.010 Definitions.

As used herein, the following terms have the following meanings:

A. "Accept" used bricks means to assume possession or control of used bricks, whether or not payment is made therefor.

B. "Brick" means a unit of building or street paving material, commonly made of clay hardened by heat, or of cinders, generally rectangular in shape, building bricks being generally smaller than paving bricks.

C. "Brick dealer" means a person or entity engaged in brick dealing, and his agents or employees.

D. "Brick dealing" means purchasing, or purchasing and selling, used bricks.

E. "Brick Rustler" means any person removing bricks from a building or street without a valid business license and a valid brick dealer's permit as provided for in this chapter.

F. "Used brick" means all bricks other than those which have never been used for building or paving purposes. (1994 C., § 8.28A.010; Ord. No. 67392, § 2, 2007.)

8.28A.020 Brick dealer's permit—Required.

No person shall engage in brick dealing in the City without having a brick dealer's permit issued pursuant to this chapter and a valid City business license. (1994 C., § 8.28A.020; Ord. No. 67392, § 3, 2007.)

8.28A.030 Brick dealer's permit—Application—Issuance.

A. Application for a brick dealer's permit shall be made to the Director of Public Safety on a form provided by such Director and shall state where the business is to be carried on. A brick dealer shall have a separate brick dealer's permit for each place at which he purchases or sells bricks. A brick dealer's permit shall be issued for a period of one year. Before any permit shall be issued, the Director of Public Safety shall procure:

1. The applicant's written statement that the applicant has installed or has at the place of business for which the permit is sought a proper camera and has agreed to use it to photograph each person selling or otherwise transferring bricks to the applicant, and to make the photographs taken available to police officers or Department of Public Safety employees upon request;

2. The applicant's written statement that the applicant will maintain a register of all purchases and sales and will make the same available for inspection by police officers or Department of Public Safety employees upon request;

3. The applicant's acknowledgement of his obligation to require display of a demolition permit and a valid City business license before accepting used bricks.

B. At the time of issuance of a brick dealer's permit, the Director of Public Safety shall furnish a copy of this chapter to the permittee.

C. No fee shall be required for a brick dealer's permit under this chapter; provided, however, that brick dealers shall be subject to all license and tax requirements imposed by or pursuant to other applicable ordinances. (1994 C., § 8.28A.030; Ord. No. 67392, § 4, 2007.)

8.28A.040 Brick dealer's permit—Revocation.

In addition to the penalties provided by this chapter, the Director of Public Safety shall have power and authority to revoke any permit issued under this chapter for any violation by a brick dealer at the location for which the permit was issued of any of the provisions of this chapter. Such a permit may be revoked only after the permittee shall have been notified in a notice addressed to him at his mailing address as indicated on his brick dealer's permit application of the violation complained of. Such notice shall also state that a hearing will be held before the Director of Public Safety on a date certain but not sooner than ten days after mailing of the notice, on the subject of revocation of the permit in question. Such hearings shall be, and be conducted as, "contested cases" under RSMo Ch. 536, as amended. In the event of revocation of a permit by the Director of Public Safety under this section, such Director shall notify all licensing authorities of the City, which shall proceed in the manner provided under this section to

initiate proceedings for revocation of any license relating or pertaining to business activities of the brick dealer related to his business as a brick dealer, for example, a demolition contractor's license. (1994 C., § 8.28A.040; Ord. No. 67392, § 5, 2007.)

8.28A.050 Photograph of brick seller required.

No brick dealer shall accept any used bricks from any person unless he shall make a photograph of such person holding the demolition permit for the structure from which such bricks were removed, in such a way that the demolition permit number and the issuing authority's name are visible in the photograph. All such photographs shall be developed and kept by the brick dealer at the location where the bricks were accepted by the dealer or to which the bricks were transported by the dealer after acceptance, for a period of one year from the date of the acceptance and shall be available to the police officers or Department of Public Safety employees for inspection during the brick dealer's normal business hours, and shall be furnished to them upon their written request. Failure to take, have developed, keep, or make available a photograph shall be deemed a violation of this chapter. (1994 C., § 8.28A.050; Ord. No. 67392, § 6, 2007.)

8.28A.060 Demolition permit requirements.

A. No brick dealer shall accept used bricks unless the seller has a current business license and a demolition permit is displayed for the demolition of the structure from which the bricks were removed.

B. No brick dealer shall accept used bricks from a person displaying a demolition permit issued by the Division of Building and Inspection of the Department of Public Safety of the City of St. Louis, if the expiration date on such permit is sixty or more days prior to the date it is displayed to the brick dealer, or if such dealer knows or in the exercise of ordinary care should know that such permit is forged or has been altered in any respect. The Director of Public Safety shall encourage brick dealers to verify data on demolition permits, and shall endeavor to make such verification as convenient as possible for brick dealers.

C. A failure of compliance by a brick dealer with this section in any respect shall be deemed a violation of this chapter. (1994 C., § 8.28A.060; Ord. No. 67392, § 7, 2007.)

8.28A.070 Register of transactions required.

A. Every brick dealer shall keep a written register at each location where he engages in brick dealing. Such register shall show, for each transaction involving acceptance of used brick by the dealer at that location:

1. The date and time thereof;

2. The seller's or transferor's name, address, motor vehicle operator's or chauffeur's license number, motor vehicle license plate number and Social Security number;

3. The quantity of brick sold or transferred;

4. The consideration paid or payable for such brick, if any;

5. The seller or transferor's statement of the location from which the brick was obtained;

6. The issuing authority, demolition permit number, and the date of each demolition permit displayed to him.

B. The register shall be open to inspection and copying by police officers or Department of Public Safety employees during the brick dealer's normal business hours.

C. The making of a false entry in, or the failure to make a complete entry of a transaction in, the register shall be deemed a violation of this chapter. (1994 C., § 8.28A.070; Ord. No. 67392, § 8, 2007.)

8.28A.080 Purchases from minors—Hours of operation.

No brick dealer shall purchase any used bricks from any minor, at any time, or from any person whomsoever, between the hours of seven p.m. and seven a.m. (1994 C., § 8.28A.080; Ord. No. 67392, § 9, 2007.)

8.28A.090 Removal and transportation of bricks.

No person shall remove bricks from a building or street without a valid business license and a valid brick dealer permit as provided for in the ordinance. It shall be a violation of this chapter for any brick rustler to transport bricks upon any public right-of-way within the City of St. Louis. (1994 C., § 8.28A.090; Ord. No. 67392, § 10, 2007.)

8.28A.100 Penalty for violation.

A. Any brick dealer who shall conduct business in violation of any of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or by both a fine and imprisonment.

B. Any person who shall buy or sell bricks in violation of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars

($500.00) or a term of imprisonment of not more than ninety (90) days or both a fine and imprisonment. For purposes of this section every brick purchased or sold in violation of this chapter shall constitute a separate transaction and shall be deemed a separate violation for the purpose of assessing a penalty. The penalty for such violation shall be not less than fifty cents ($0.50) per brick. (1994 C., § 8.28A.100; Ord. No. 67392, § 11, 2007.)

Chapter 8.29

CABLE TELEVISION

Sections:

8.29.010 **Definitions and rules of construction.**
8.29.020 **Franchise required.**
8.29.030 **Application procedures.**
8.29.040 **Renewal procedure.**
8.29.050 **Procedures for ordinances granting or renewing franchises.**
8.29.060 **Transfer.**
8.29.070 **Payments to the City.**
8.29.080 **Acceptance and term of franchise.**
8.29.090 **Termination of franchise.**
8.29.100 **Amendment of franchises.**
8.29.110 **Conditions and limitations of franchise.**
8.29.120 **Channel capacity and system requirements.**
8.29.130 **Two-way capacity and addressability.**
8.29.140 **PEG access requirements.**
8.29.150 **Technical requirements and channel capacity.**
8.29.160 **Safety requirements.**
8.29.170 **Conditions on street occupancy.**
8.29.180 **Construction.**
8.29.190 **Rates charged to subscribers.**
8.29.200 **Minority and women participation, training.**
8.29.210 **Job skills and training.**
8.29.220 **Other business activities.**
8.29.230 **Continued use of individual antennas protected.**
8.29.240 **Grantee may promulgate rules.**
8.29.250 **Discriminatory practices prohibited**
8.29.260 **Liability and indemnification.**
8.29.270 **Performance bond.**
8.29.280 **Right of City to intervene.**
8.29.290 **Fines.**
8.29.300 **Rights and remedies are cumulative.**
8.29.310 **Delegation of powers.**
8.29.320 **Resolution of complaints.**
8.29.330 **Tampering and theft of service.**
8.29.340 **Open video systems.**

8.29.010 Definitions and rules of construction.

A. For the purposes of this chapter, the following terms, phrases, words, and their derivations shall have the meaning given herein, unless the context clearly indicates that another meaning is intended.

1. "Access" refers to the availability of channels or capacity on the cable system for noncommercial use by certain agencies, institutions, organizations, groups and individuals in the community, including the City and its designees, for distribution of video programming or other programming services, including, but not limited to, the following types of access.

a. "Community access" means PEG access in which an independent nonprofit organization is the primary user and exercises editorial control over noncommercial programming content and other noncommercial services, developed on a noncommercial basis in conjunction with the local community and generally not subject to editorial control by the City, a grantee, or other parties, except to the extent permitted under applicable law.

b. "Educational access" means access in which schools are the primary users and exercise editorial control over noncommercial programming content and other noncommercial services.

c. "Government access" means access in which City governmental institutions or their designees are the primary users and exercise editorial control over noncommercial programming content and other noncommercial services.

d. "PEG access" means Public, Educational, and Governmental access collectively, as that term is commonly used in federal and local law, and over which a grantee shall not exercise editorial control, except to the extent allowed by applicable law.

e. "Public access" means access in which individual members of the general public, community-based groups, and other organizations are the primary users

on a noncommercial, non-discriminatory basis, and content of programming is generally not subject to editorial control by the City, a grantee, or other parties, except to the extent permitted under applicable law.

2. "Access channel" means any channel, or portion thereof, designated for PEG access purposes, or otherwise made available to transmit PEG access programming or services.

3. "Affiliate" of a person means any person that owns or controls, is owned or controlled by, or is under common ownership or control with, that person.

4. "Agency." See "franchise agency."

5. "Agreement." See "Franchise agreement."

6. "Application." See "Franchise application."

7. "Board of Aldermen" means the City's Board of Aldermen, created by Article IV of the City's Charter as amended.

8. "Board of Public Service" means the City's Board of Public Service as constituted pursuant to the City's Charter.

9. "Broadcast signal" means a federally-licensed television signal transmitted over the air to a wide geographic audience.

10. "Cable act" means Title 47 of the United States Code, Title VI, 47 U.S.C. § 521 et seq., as amended from time to time.

11. "Cable operator" means any person or group of persons (A) who provides cable service over a cable system and directly or through one or more affiliates owns a significant interest in a substantial portion of such cable system, or (B) who otherwise controls or is responsible for, through any arrangement, the management and operation of such a cable system.

12. "Cable service" means (1) the one-way transmission to subscribers of video programming or other programming service; and (2) subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service.

13. "Cable system" means a facility consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within the City, but such term does not include (1) a facility that serves only to retransmit the television signals of one or more television broadcast stations; (2) a facility that serves subscribers without using any public rights-of-way and without connecting to a facility that uses any public rights-of-way in the City; (3) a facility of a common carrier which is subject, in whole or in part, to the provisions of Title II of the Communications Act, except that such facility shall be considered a cable system (other than for purposes of 47 U.S.C. § 541(c)) to the extent that such facility is used in the transmission of video programming directly to subscribers; (4) an open video system that complies with 47 U.S.C. § 573; or (5) any facilities of any electric utility used solely for operating its electric utility system. The foregoing definition of "cable system" shall not be deemed to circumscribe or limit the valid authority of the City to regulate or franchise the activities of any other communications system or provider of communications services to the full extent permitted by law.

14. "City" means the City of St. Louis, a municipal corporation of the State of Missouri, organized and existing under its Charter and the constitution and laws of the State of Missouri.

15. "Connection" (with regard to connections to buildings or access facilities) means installation of fiber optic cable, coaxial cable, or other cable system-related facility through the outer wall of a building, leaving adequate excess facility to permit further connection to other facilities, plant or cable within the building.

16. "Document" or "record" means written or graphic materials, however produced or reproduced, computerized data base information, maps, products of telephone recording or monitoring, or any other tangible record.

17. "Dwelling unit" means any building or portion thereof that has independent living facilities, including provisions for cooking, sanitation and sleeping, that is designed for residential occupancy. Buildings with more than one set of facilities for cooking, and buildings that individually house residents but provide common cooking and dining facilities (such as senior citizen care facilities), shall be considered multiple dwelling units ("MDUs").

18. "Effective date" of a franchise means the date on which a grantee's acceptance of its franchise is certified as complete and consistent with this chapter and its franchise ordinance by the agency and the City Counselor as more fully provided in Section 8.29.030 hereof.

19. "Facility" means any tangible component of a cable system, without limitation.

20. "Federal Communications Commission" or "FCC" is the present federal agency of that name as

constituted by the Communications Act of 1934, or any successor agency created by the United States Congress.

21. "Franchise" means an authorization granted by the City pursuant to its Charter which permits the construction, operation and maintenance of a cable system within the franchise area for the purpose of providing cable service, subject to the terms of this chapter and a grantee's franchise agreement.

22. "Franchise agency" means the Communications Division of the Department of Public Utilities of the City of St. Louis, its manager or his delegate, or any successor division or department thereto.

23. "Franchise agreement" means a contract entered into between the City and a grantee, in accordance with the provisions of this chapter, that sets forth the terms and conditions under which a franchise shall be exercised.

24. "Franchise application" means all documents, submissions, supplemental filings, letters and explanations in which a grantee or applicant applies for a franchise to construct a cable system.

25. "Franchise area" means that area under the jurisdiction of the City for which a franchise is granted under the authority of this chapter. The franchise area may or may not be coterminous with the City.

26. "Grantee" is a holder of a cable franchise issued by the City pursuant to this chapter and a franchise agreement.

27. "Headend" means any facility for signal reception and dissemination on a cable system, including cables, wires, satellite dishes, monitors, switchers, modulators, processors for television broadcast signals, equipment for interconnection of a cable system with adjacent cable systems, interconnection of any separate networks that are part of the cable system, and all other related equipment and facilities.

28. "Interconnection" means provision by a grantee of facilities necessary to maintain a physical link between a grantee's cable system and another network or networks, so that certain cable services of technically adequate quality may be sent to and received from other networks, including, but not limited to, PEG access programming.

29. "Major stockholder" is an owner, directly or indirectly, of ten percent or more of the issued and outstanding voting stock of any corporation.

30. "Minority group" means a group of persons legally residing in the United States who are African-American, Asian-American, Native-American or Hispanic-American.

31. "Open video system" means a system certified by the FCC as such pursuant to 47 U.S.C. § 573.

32. "Permit" means a revocable approval issued by the Board of Public Service to construct facilities in public rights-of-way, subject to terms and conditions established therein, or ancillary permits such as excavation or street-blocking permits.

33. "Person" means any individual, firm, corporation, association, or other legally recognized entity.

34. "Public rights-of-way" means the surface and space above and below any public street, avenue, highway, boulevard, concourse, driveway, bridge, tunnel, park, parkway, waterway, dock, bulkhead, wharf, pier, alley, right-of-way, or public utility easement. It does not include such places that are now or hereafter permanently and unconditionally vacated by the City to a private person.

35. "School" means (a) any parochial or accredited private primary, middle or secondary school and (b) any taxpayer-funded primary, middle or secondary school (excluding living facilities or dwelling units).

36. "Subscriber" means any person who lawfully receives cable service from an operator, including commercial as well as residential accounts, the City and its agencies in its capacity as a lawful recipient of such services.

37. "Transfer" shall have the meaning given that term in a franchise agreement.

38. "User" means a person using all or part of a cable system to produce or transmit video programming or other programming services, as contrasted with receipt thereof in the capacity of a subscriber.

B. Rules of construction. Unless the context clearly indicates to the contrary, the following rules apply to the construction of this chapter:

1. Unless otherwise expressly stated, words not defined herein shall be given the meaning set forth in Title 47 of the United States Code, as amended, or, if not defined therein, in Chapter 47 of the Code of Federal Regulations, or, if not defined therein, their common and ordinary meaning.

2. Words importing the singular number include the plural number and vice-versa.

3. Words in the present tense include the future tense and vice-versa.

4. The masculine gender includes the feminine gender and vice-versa.

5. All references to particular sections are references to sections of this chapter.

6. The headings herein are solely for convenience of reference and do not constitute a part of this chapter nor do they affect its meaning, construction or effect.

7. The word "shall" as used herein is always mandatory and not directory, and the word "may" as used herein is permissive.

8. "Applicable law" shall include, but is not limited to, applicable City ordinances, subject to the provisions of Section 8.29.110.F.

9. The first letters of terms may be capitalized for convenience, but failure to capitalize a letter shall not affect the meaning. (1994 C., § 8.29.010; Ord. No. 65431, § 2, 2002.)

8.29.020 Franchise required.

A. It shall be unlawful to commence or engage in the construction, operation or maintenance of a cable system within the territorial boundaries of the City without first obtaining a franchise issued under the provisions of this chapter and entering into a franchise agreement with the City. The City may, by ordinance, award a franchise to construct, operate, and maintain a cable system within all or any portion of the City to any person, whether operating under an existing franchise or not, who makes application for authority to furnish a cable system which complies with the terms and conditions of this chapter. Provided, that this section shall not be deemed to require the grant of a franchise to any particular person or to prohibit the City from restricting the number of grantees (for example, due to limited capacity in the public rights-of-way) should it determine such a restriction would be lawful and in the public interest.

B. Any person that provides cable service within the City via facilities or equipment in the public rights-of-way, but is not required under applicable law to obtain a cable franchise from the City, must obtain a separate authorization from the City granting such person the right to do so, pursuant to all applicable City law. This includes, but is not limited to, a person that provides cable service via facilities or equipment in the public rights-of-way that are not owned by such person, whether or not the owner is an affiliate. (1994 C., § 8.29.020; Ord. No. 65431, § 3, 2002.)

8.29.030 Application procedures.

A. Any person interested in obtaining an initial franchise to operate a cable system in the City of St. Louis shall submit an original and nine copies of a written application to the franchise agency together with a non-refundable application fee of twenty-five thousand dollars. The application shall contain the following information:

1. The name, address and business structure of the applicant. If the applicant is a corporation, it shall also state the names, addresses and occupations of its officers, directors and major stockholders, and the names and addresses of any parent or subsidiary companies. If the applicant is a corporation controlled by another corporation, the names, addresses and occupations of the officers, directors and major stockholders of the controlling corporation shall also be stated. If the applicant is a partnership or other incorporated association, the name and address of each member, whether active or inactive shall be set forth, and if one or more partners are corporations, the names, addresses and occupations of such corporation's officers, directors and major stockholders shall also be stated;

2. A list of all other cable systems, if any, in which the applicant (or any partner or major stockholder of applicant) has a direct or indirect interest, stating the location, approximate number of homes served, and the name and address of the local franchising body;

3. A list of all other cable systems, if any, for which the applicant or its corporate parents have obtained franchises but have not yet completed construction. If such other systems exist, the applicant should explain any implications of its financial commitments elsewhere for the financing of its prospective franchise in the City;

4. A thorough description of the proposed cable system to be installed and operated; a construction time-table covering start through completion of all facilities of the system; a time-table for capability to deliver subscriber service to each portion of the franchise area and for the entire City; and a description of the extent and manner in which existing or future poles or other facilities of public utility companies will be used in the proposed system;

5. A copy of any contract which may exist between the applicant and any public utility providing for the use of such utility's property, such as poles, lines or conduits, in the City;

6. A statement setting forth all agreements and understandings whether written, oral, or implied, between the applicant and any other person with respect to the proposed franchise or proposed cable system operation. If a franchise should be granted to a person posing as a straw party for or representative of another undisclosed person, such franchise shall be deemed void ab initio and of no force and effect whatsoever;

7. An estimate of the cost of constructing the applicant's proposed system and a financial statement prepared in form satisfactory to the City showing applicant's financial status and its financial ability to meet these proposed costs. If construction will take more than one year the estimate shall be broken down to costs for each year;

8. A schedule of proposed rates and charges to all classes of subscribers for both installation and monthly cable service, consistent with the financial statement required in Subsection A.7 of this section;

9. A sworn statement acknowledging the applicant's familiarity with and eligibility under the provisions of this chapter, the City's customer service ordinance and the rules of the FCC, and its intention to abide by the same;

10. An applicant shall provide any such supplementary information as the City shall at any time demand in order to reasonably determine whether the requested franchise should be granted. The acceptance or use by the City of any of the written information submitted by the applicant pursuant to this chapter shall not constitute any waiver or abrogation of the standards or requirements of this chapter with regard to any breach of or noncompliance with this chapter which may be reflected in the applicant's written submissions.

B. The franchise agency may, at its discretion and upon request of an applicant, waive in writing the provision of any of the information required by Subsection A of this section. A copy of such waiver must be sent to members of the Public Utilities Committee of the Board of Aldermen, or to such committee, as determined by the Rules of the Board of Aldermen, having jurisdiction over cable television franchises, along with an explanation of such waiver immediately upon its issuance. Issuance of a waiver does not waive the rights of the Franchise Agency to request such waived information after the initial application is filed.

C. For the purposes of determining whether it shall grant an initial franchise, the City or its agents may inquire into all qualifications of the prospective grantee and such other matters as the City may deem necessary to determine whether and under what conditions an initial franchise should be granted. An applicant shall assist the City in any such inquiry, and if it fails to do so, the application may be denied.

D. After receiving an initial franchise application, the franchise agency shall specify a public place where interested parties may inspect all such bona fide applications and schedule a public hearing before the franchise agency. After the public hearing the franchise agency shall send its findings and recommendations to the members of the Public Utilities Committee of the Board of Aldermen, or to such committee, as determined by the Rules of the Board of Aldermen, having jurisdiction over cable television franchises, within 30 days. (1994 C., § 8.29.030; Ord. No. 66084, § 1, 2003; Ord. No. 65431, § 4, 2002.)

8.29.040 Renewal procedure.

A. The renewal of any franchise shall be conducted in a manner consistent with applicable federal law.

B. Any ordinance renewing a franchise shall be adopted in accordance with any applicable requirements of the City Charter. (1994 C., § 8.29.040; Ord. No. 65431, § 5, 2002.)

8.29.050 Procedures for ordinances granting or renewing franchises.

A. The provisions of Section 1 of Article XIX of the Charter of the City apply to all granting or renewal of franchises as contemplated in this chapter.

B. Upon introduction into the Board of Aldermen of any board bill the effect of which is to grant or renew any franchise, the clerk shall immediately notify the Secretary of the Board of Public Service of said fact and transmit to the Board of Public Service a copy of the proposed Board bill that would authorize the granting or renewal of said franchise.

C. Subject to applicable law, the City reserves any rights it may have to impose application fees for franchise transfer or renewal. (1994 C., § 8.29.050; Ord. No. 65431, § 6, 2002.)

8.29.060 Transfer.

A. A franchise shall be a privilege which is personal to the original grantee. It shall not be sold, transferred, leased, assigned, or disposed of, directly or indirectly, in whole or in part, either by forced or voluntary

sale, merger, consolidation, receivership, appointment of a trustee or foreclosure, or otherwise, without prior consent of the City expressed by ordinance, and then only under such lawful terms and conditions as may therein be prescribed by the City. Upon such approval a grantee may proceed to make the transfer under such terms and conditions. Any such transfer or assignment shall be made only by an instrument in writing, which shall include an acceptance of all terms and conditions of the franchise by transferee, a duly executed copy of which shall be filed with the agency within thirty days after any such transfer or assignment is complete.

B. Application.

1. A grantee shall promptly notify the franchise agency of any proposed transfer. If any transfer should take place without prior notice to the franchise agency (contrary to the requirements of this section), the grantee will promptly notify the franchise agency that such a transfer has occurred. The franchise authority shall immediately notify the members of the Public Utilities Committee of the Board of Aldermen, or to such committee, as determined by the rules of the Board of Aldermen, having jurisdiction over cable television franchises, of its notification or knowledge of grantee's transfer or proposed transfer which took place or is proposed to take place without prior notice to the franchise authority.

2. At least one hundred twenty (120) calendar days prior to the contemplated effective date of a transfer, a grantee shall submit to the franchise agency an original and nine copies of a written application for approval of the transfer. Such an application shall provide complete information as described in this subsection on the proposed transaction. The franchise authority shall notify the Public Utilities Committee of the Board of Aldermen, or such committee, as determined by the rules of the Board of Aldermen, having jurisdiction over cable television franchises, immediately upon receiving notice of the proposed transfer of the grantee. At a minimum, the application must include (subject to the provisions of Subsection B.3 of this section regarding confidential, trade secret, or proprietary information):

a. All information and forms required under federal law;

b. A complete and unredacted copy of the agreement(s) to carry out the proposed transaction(s) and of all schedules, exhibits, and other documents attached thereto, together with any documents referred to therein that were prepared for purposes of the proposed transaction, and any other documents necessary to understand the proposed transaction or its effect on the City; provided, however, that the grantee may, subject to the provisions of Subsection B.3 of this section, redact (i) confidential, trade secret, or proprietary information, and (ii) documents relating only to other communities and having no material effect on the proposed transaction as applied to the City;

c. A diagram or description of the ownership and control of the proposed transferee, showing the relationship of the proposed transferee to its immediate, intermediate, and ultimate owners;

d. To the extent already prepared, audited or, if audited statements are not available, otherwise publicly available financial statements for the transferee or, if such statements for the transferee are not available, such statements for the closest corporate parent in the line of control of the transferee, for the last three years, including balance sheets, income statements, profit and loss statements, and documents detailing capital investments and operating costs;

e. A description of the sources and amounts of the funds or other consideration to be used in the proposed transaction, and, if the proposed transaction requires that the system be used as collateral for debt, the anticipated debt/equity ratio applicable to the system;

f. Other information necessary to provide a complete and accurate understanding of the financial qualifications of the proposed transferee to meet the grantee's obligations under the franchise;

g. A statement certifying that the transfer will not adversely affect subscriber rates (which may reserve the proposed transferee's right generally to make any lawful changes in rates after the transfer), or, in the alternative, explaining any such adverse impact that the proposed transferee reasonably foresees; a statement certifying that the transfer will not adversely affect the quality of service, or, in the alternative, explaining any such adverse impact that the proposed transferee reasonably foresees;

h. A description of the transferee's prior experience in cable system ownership, construction, and operation;

i. A brief summary of any plans the proposed transferee may have at the time of the application regarding line extension, plant and equipment up-

grades, channel capacity, expansion or elimination of services, and any other changes affecting or enhancing the performance of the system;

j. A complete list of any final actions taken in the past five years by a franchising authority with respect to the proposed transferee (or any corporate parent) denying transfer or renewal;

k. A complete list of any legal actions known to the transferee (or any corporate parent) relating to cable franchises (other than tax and condemnation actions) filed in any federal or state court or at the Federal Communications Commission in the past three years by a franchising authority against the transferee (or any corporate parent), or by the transferee (or any corporate parent) against a franchising authority, listing for each such action the information normally shown in the case caption and the current status of the case (for example, "settled" or "pending").

3. Confidential, Trade Secret, or Proprietary Information.

a. If a grantee claims that any specific documents or portions thereof required by Subsection B.2 of this section are confidential, trade secret, or proprietary, then rather than submitting such documents or portions thereof with the application, the grantee may redact such specific documents or portions thereof and include with the application a schedule of all such documents or portions thereof identifying any redacted materials and the basis on which the grantee believes them to be confidential, trade secret, or proprietary.

b. If the City wishes to inspect the confidential, trade secret, or proprietary materials referred to in Subsection B.3.a of this section in unredacted form, then, pursuant to a lawful and reasonable confidentiality agreement as appropriate, the grantee shall make such materials available for inspection within ten days after the City's written request at a location within the City or as otherwise agreed to by the City and the grantee, using its best efforts to accommodate the City's reasonable preferences as to the time and place of inspection.

c. If the City considers the application incomplete without the redacted information, it shall so notify the grantee within the first thirty days after submission of the application. If the City does not so notify the grantee, the City shall be deemed to have accepted the redactions as not rendering the application incomplete for purposes of any applicable federal time period for review; provided, however, that this provision shall not be construed to limit any right of the City to request or require such information after the initial thirty-day period (without affecting any review period specified by federal law). If grantee makes such information available for inspection as provided in Subsection B.3.b of this section within ten days after written request by the City, such redactions shall not be a basis for a determination that the application is not complete.

4. Documents Relating to Other Communities. If a grantee redacts documents relating only to other communities and having no material effect on the proposed transaction as applied to the City pursuant to Subsection B.3.b of this section, the grantee may redact such documents, and the City may inspect such documents to determine whether they have been properly redacted pursuant to Subsection B.3.b of this section, in the same way as for confidential, trade secret, or proprietary information pursuant to Subsection B.3 of this section.

5. To the extent consistent with applicable law, the franchise agency may waive in writing any requirement that information specified in Subsection B.2 of this section be submitted as part of the initial application, without thereby waiving any rights the franchise agency may have to request such information after the initial application is filed.

C. A grantee shall have a continuing obligation to update the information specified in Subsection B.2 of this section to reflect any material changes after the submission of such information. Such updates shall not alter any deadlines specified by federal law for the City's review of the transfer.

D. Consent of the City shall not be granted until it has complied with all City Charter requirements applicable to a transfer.

E. Determination by City.

1. In making a determination as to whether to grant, deny, or grant subject to conditions an application for a transfer, the City may consider, without limitation and including any matter not prohibited by applicable law, the legal, financial, and technical qualifications of the transferee to operate the system; any potential impact of the transfer on subscriber rates or services; whether the proposed transferee will meet all franchise obligations (including, without limitation, any outstanding obligation to remedy any past noncompliance); and whether the transferee owns or controls any other cable system in the City.

2. Any transfer without the City's prior written approval shall be ineffective, and shall make the franchise voidable by ordinance, and subject to any other remedies available under this agreement or other applicable law.

3. A grantee shall be fully liable under its franchise for any transfer that is in violation of the terms of that franchise and caused in whole or in part by any other person or persons, including, but not limited to, any affiliates, as if such transfer had been caused by the grantee itself.

4. Transferee's Agreement. No application for a transfer in which a different entity holds the franchise after the transfer than beforehand shall be granted unless the transferee agrees in writing that it will abide by and accept all terms of the previous grantee's franchise agreement, this chapter, other applicable law, and any other agreements between the City and the previous grantee, and provides all additional items required thereby (for example, insurance certificates and bonds). (1994 C., § 8.29.060; Ord. No. 66084, § 2, 2003; Ord. No. 65431, § 7, 2002.)

8.29.070 Payments to the City.

A. A grantee shall pay the City as compensation for the rights and privileges enjoyed under the grantee's franchise a sum equal to five percent of the gross revenues derived from operation of the grantee's cable system within the City to provide cable services.

B. A grantee shall file with the Comptroller and the franchise agency a quarterly statement showing the gross revenues derived from the operation of its cable system within the City during the three-month periods ending respectively on the last day of March, June, September and December of each calendar year. Said statements shall be filed not later than forty-five days after the close of the quarterly period to which they apply. Statements shall include a detailed fee calculation report delineating categories of revenues, calculation methodology, and other pertinent documentation with form and content acceptable to the agency and the City Comptroller and subject to revision to reflect new services or business conditions.

C. A quarterly installment of the payment required in Subsection A of this section shall be paid at the time of filing each statement required by Subsection B of this section and shall be submitted with said statements. Each such quarterly payment shall be in an amount equal to the portion of the annual payment which accrued during the quarter which is recorded in the statement.

D. The City shall have the right to inspect a grantee's records showing the gross revenues from which its franchise payments are computed, and shall also have the right of audit and recomputation of any and all amounts paid under this chapter.

E. In the event that any payment required from a grantee under this section is not paid when due, there shall accrue to such debt, from and after the due date and running until such payment is received by the City (either from the grantee directly or by recovery from a bond, letter of credit, escrow amount, or similar instrument), interest at ten percent per annum.

F. For purposes of calculating franchise fee payments under applicable franchise provisions, in any aggregated bill which includes cable services and noncable services or other products, any charges and discounts shall be allocated in a reasonable manner and in accordance with generally accepted accounting principles (GAAP). Franchise fee payments covering periods in which any such aggregated bill is used shall be accompanied by a full explanation of such allocation and the amounts so allocated. Any such allocation may be addressed in any audit conducted pursuant to this chapter or any franchise agreement.

G. No acceptance of payment shall be construed as a release or as an accord and satisfaction of any claim the City may have for further or additional sums payable under this chapter or for the performance of any other obligation hereunder; however, an accounting rendered to the City and to which no exception is made within five years after receipt by the City shall be deemed to be accurate and shall not thereafter be subject to question or made the basis of any claim by City against grantee.

H. Payment of the franchise fee shall not be considered in the nature of a tax or in lieu of other taxes or fees imposed by the City. The franchise fee is in addition to all other taxes, fees, assessments, and payments that a grantee may be required to pay under its franchise agreement or any federal, state, or local law or ordinance, and to any other tax, fee, assessment or payment imposed on utilities and cable operators or their subscribers for use of their services, facilities, or equipment, including any applicable amusement taxes,

except to the extent that such fees, taxes, or assessments are a franchise fee under Section 622 of the Cable Act, 47 U.S.C. § 542.

I. A franchise ordinance may require a grantee to contract, for all or part of a franchise term, for lock box service with a bank with an office in the City. Such a contract shall be subject to approval by the franchise agency and shall provide that a lock box address shall be the grantee's designated address for mailed payments by subscribers, and may provide for periodic disbursements of lock box receipts to the City for application to the grantee's franchise fee obligations to the City. (1994 C., § 8.29.070; Ord. No. 65431, § 8, 2002.)

8.29.080 Acceptance and term of franchise.

A. Any cable franchise granted by the City shall be for a term of no more than fifteen years; which time shall commence to run upon the effective date of the franchise. This section shall not preclude the extension or renewal of a franchise pursuant to applicable law, but any renewal period shall also be limited to fifteen years.

B. A grantee shall accept its franchise by executing its franchise agreement and filing it with the City Register within thirty City business days after the effective date of the ordinance awarding that franchise. An acceptance is not valid unless and until the agency and the City Counselor certify in writing to the City Register that the acceptance is complete and consistent in all respects with the requirements of this chapter and the grantee's franchise agreement. An acceptance shall consist of a written and unconditional acceptance of and agreement to all the provisions of a grantee's franchise agreement and this chapter, and shall also consist of all of the following:

1. Any certificates of insurance required by its franchise agreement or this chapter;

2. Any bond, letter of credit, escrow amount, or similar instrument required by its franchise agreement or this chapter;

3. Proof of establishment of any construction escrow account required by its franchise agreement or this chapter;

4. Any other executed contracts or other documents as required by its franchise agreement or this chapter.

C. A grantee's franchise agreement shall constitute a contract between the City and the grantee upon the grantee's acceptance of its franchise pursuant to Section 8.29.030 of this chapter.

D. Unless and until a grantee completes an acceptance pursuant to this Section 8.29.030, the franchise awarded subject to the completion of such acceptance shall have no effect, and the grantee shall obtain no new right therefrom, and any right of grantee to construct, operate or maintain a cable system in the City shall be subject to the City's permitting, in its sole discretion, where applicable, such construction, operation, or maintenance under such terms and conditions as may then be in effect for a period of time sufficient, in the City's judgment, to ensure continuity of cable service to subscribers, to allow further negotiations, renewal, or application processes, or to terminate a franchise pursuant to applicable law and allow a grantee to dispose of its system in a manner approved by the City, all subject to applicable law. (1994 C., § 8.29.080; Ord. No. 65431, § 9, 2002.)

8.29.090 Termination of franchise.

A. In addition to all other rights and powers reserved by the City in granting any franchise, the City reserves the right to terminate and cancel any franchise and all rights and privileges of the grantee thereunder pursuant to the terms of its franchise agreement and this chapter, or as such termination or cancellation may be expressly provided for in a related agreement with the City, in the event that the grantee:

1. Materially violates any provision of the grantee's franchise, or any rule, regulation, order or determination of the City made pursuant to the franchise, except where such violation is without fault or through excusable neglect, provided that a grantee is not without fault if a violation is caused or committed by an affiliate or a corporation or business entity in which such grantee holds a controlling interest directly or indirectly;

2. Attempts to dispose of any of the facilities or property of its cable business to the detriment of its franchise;

3. Attempts a material evasion of any of the provisions of its franchise;

4. Practices any fraud or deceit upon the City;

5. Violates the material construction requirements of Section 8.29.180 of this chapter;

6. Violates any related agreement with the City which expressly provides for franchise termination in the event of such violation.

B. The procedure for termination of a franchise under Section 8.29.090A shall be as follows:

1. If the franchise agency determines that a grantee is not, in its opinion, in material compliance with this chapter or the terms or conditions of any franchise issued thereunder, or any rule, regulation, order or determination of the City made pursuant to the franchise, it may initiate such termination proceedings by notifying the grantee with a copy to the Board of Aldermen, and the grantee shall within thirty days bring the franchised system into compliance with the terms of the notice issued by the City, reporting the corrective action taken by the grantee to the franchise agency.

2. If a majority of the members of the Board of Aldermen state by Resolution that they are not satisfied that compliance has been achieved, or that good faith progress is being made toward compliance, a public hearing before the Public Utilities Committee or its successor shall be scheduled to determine whether the franchise should be revoked. The grantee and the public shall be given at least fifteen days' notice of such hearing. All interested parties shall be heard in an open and public hearing. Subsequent to the public hearing, the Board of Aldermen shall determine whether the franchise shall be terminated and shall set forth, in writing, the facts and reasons upon which its decision is based.

C. Termination on account of certain assignments or appointments.

1. To the extent not prohibited by the United States Bankruptcy Code, a franchise shall terminate automatically by force of law one hundred eighty (180) calendar days after an assignment for the benefit of creditors or the appointment of a receiver or trustee (including a debtor-in-possession in a reorganization) to take over the business of a grantee, whether in bankruptcy or under a state law proceeding; provided, however, that such franchise shall not so terminate if, within that one-hundred-eighty-day period:

a. Such assignment, receivership or trusteeship has been vacated; or

b. Such assignee, receiver, or trustee has cured or agreed to cure any defaults under the franchise and has executed an agreement, duly approved and executed on behalf of the City, submitted to any court whose approval is required within one hundred twenty (120) days after such assignment or appointment, and approved by any such court within an additional sixty (60) days thereafter, under which it assumes and agrees to be bound by the terms and conditions of the franchise.

2. To the extent not prohibited by the United States Bankruptcy Code, in the event of foreclosure or judicial sale of substantially all of the facilities, equipment, or property of a grantee, the franchise and franchise agreement shall automatically terminate one hundred eighty (180) calendar days after such foreclosure or sale, unless:

a. The City has approved a transfer of the franchise to the successful bidder in accordance with the provisions of this Section 8.29.060; and

b. The successful bidder has covenanted and agreed with the City to assume and be bound by the terms and conditions of the franchise. (1994 C., § 8.29.090; Ord. No. 65431, § 10, 2002.)

8.29.100 Amendment of franchises.

Any amendment of a franchise agreement shall be subject to acceptance by the grantee, except that nothing herein or in any franchise agreement shall be construed to limit the lawful exercise of the City's police power, authority lawfully to levy any nondiscriminatory taxes on any activity conducted by a grantee, or other lawful authority, whether exercised by ordinance or otherwise. Nothing herein, however, shall affect the City's or a grantee's rights with respect to renewal of the grantee's franchise. (1994 C., § 8.29.100; Ord. No. 65431, § 11, 2002.)

8.29.110 Conditions and limitations of franchise.

A. This chapter itself grants no authority to operate a cable system. Such grants shall be made by the adoption of a separate ordinance pursuant to the provisions of the City Charter and this chapter concerning approval of ordinances granting or renewing a specific franchise to an applicant who has complied with the provisions of this chapter.

B. No ordinance granting a franchise shall be adopted until all requirements of the Charter relating to such an ordinance have been complied with.

C. A franchise authorizes use of public rights-of-way for installing, operating and maintaining, as herein and in the franchise agreement provided, cables, wires, lines, optical fiber, underground conduit, and other devices necessary and appurtenant to the operation of a cable system to provide cable service within a fran-

chise area, but does not authorize a grantee to place facilities on private property without owner consent; provided, however, that other applicable law may operate to authorize such placement.

D. A franchise shall constitute both a right and an obligation to use a cable system to provide cable service in the City pursuant to the requirements of the grantee's franchise agreement and this chapter.

E. Any franchise granted under this chapter shall be non-exclusive and revocable pursuant to its terms, and nothing herein shall be construed to prevent the City from granting cable franchises or other public right-of-way authorizations to more than one person, within all or any portion of the City. The City shall not grant a franchise or similar authorization for cable services that would impose an unfair competitive disadvantage on a grantee by granting terms or conditions under another person's franchise agreement or similar authorizing document that are materially more favorable or less burdensome than those of such grantee under its franchise agreement or similar authorizing document.

F. A grantee shall at all times during the life of its franchise, be subject to the lawful exercise of the City's police power, authority lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee, or other lawful authority, whether exercised by ordinance or otherwise. Nothing contained in this chapter shall be deemed to prohibit in any way the right of the City lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee.

G. All privileges prescribed by a franchise shall be subordinate to any prior lawful occupancy of the public rights-of-way, and the City reserves the right to reasonably designate by permit or otherwise where a grantee's facilities are to be placed within the public rights-of-way.

H. Nothing in this chapter in any way impairs or waives any right or power of the City to acquire the property of a grantee by purchase at a price reflective of its fair market value as an ongoing concern (provided that in no event is the franchise itself to enter as an element into such compensation) or such other price as may be required pursuant to applicable law, or through the exercise of the power of eminent domain pursuant to Missouri law.

I. This chapter, and franchises granted under this chapter, shall be subject to the applicable provisions of the U.S. Constitution and the Constitution of the State of Missouri. (1994 C., § 8.29.110; Ord. No. 65431, § 12, 2002.)

8.29.120 Channel capacity and system requirements.

A. *Channel Capacity.* A grantee shall construct a cable system that shall have a minimum capacity of 750 MHz.

B. *Emergency Alert System.* A grantee shall design and construct the system to provide for an emergency alert system as specified in its franchise agreement. (1994 C., § 8.29.120; Ord. No. 65431, § 13, 2002.)

8.29.130 Two-way capacity and addressability.

Any system shall be, at the time of its installation and at all times thereafter, maintained as a two-way interactive addressable system. (1994 C., § 8.29.130; Ord. No. 65431, § 14, 2002.)

8.29.140 PEG access requirements.

A. A grantee's franchise agreement shall require the grantee to provide and maintain:

1. *Municipal and School Services.* At least one service outlet to each municipal facility and public or private school within its franchise area at no cost to the City or school systems involved, and charging only its time and material costs for any additional service outlet installations to such facilities;

2. *A Public Access Channel.* At least one specially designated, noncommercial public access channel available on a first-come, nondiscriminatory basis and managed by a nonprofit organization acceptable to the City;

3. *A Community Access Channel.* At least one specially designated, noncommercial community access channel available on a first-come, nondiscriminatory basis and managed by a nonprofit organization acceptable to the City;

4. *A Local Government Access Channel.* At least one specially designated channel available for City use;

5. *An Elementary and Secondary Educational Access Channel.* At least one specifically designated channel for use by local educational authorities at the elementary and secondary levels;

6. *A University and College Educational Access Channel.* At least one specially designated channel for use by the local (St. Louis or St. Louis County) universities and colleges, whether public or private institutions.

B. Access channel assignments shall be the same throughout the cable system in the City.

1. Access channel assignments shall not be changed unless there is good cause.

2. If a grantee seeks to change the channel assignment of an access channel more than twice during a franchise term, the grantee must obtain the consent of the access channel user to the additional change, which consent shall not be unreasonably withheld.

3. Any reassignment of an access channel must be to a channel of technical quality at least equivalent to that of other channels on the system.

4. In the event of such a reassignment, the grantee shall pay the costs of all equipment, advertising, and promotional materials required due to the reassignment.

C. A grantee by accepting a franchise agrees that the City may, from time to time, by ordinance regulate use of public access channels; and that it will permit the public to use the public access channel or channels at minimal or no cost.

D. A grantee will provide any PEG access channels on the basic tier throughout the life of the franchise, or if there is no basic tier, shall provide the PEG access channels at no charge to subscribers, and otherwise in accordance with federal and state law If channels are selected through a menu system, the PEG access channels shall be displayed; provided, however, that the City or its designee shall be responsible for providing any necessary information for the PEG access channels for the menu system as reasonably required by the grantee or the entity providing grantee's menu system. (1994 C., § 8.29.140; Ord. No. 65431, § 15, 2002.)

8.29.150 Technical requirements and channel capacity.

A. The cable system to be constructed by grantee shall be installed, maintained, and operated at all times in full compliance with all applicable technical and channel capacity standards of the Federal Communications Commission.

B. The results of annual performance tests in accordance with FCC rules and regulations shall be retained by a grantee for at least five (5) years and shall be available for inspection by the franchise agency during business hours at grantee offices in the City upon twenty-four hours' notice. Copies of such test results shall be promptly provided upon the agency's request.

C. A franchise agreement shall address technical performance and testing procedures.

D. A grantee shall conduct monthly tests of the emergency alert system, in conjunction with the City department designated for such testing.

E. The City shall have the authority to inspect any portion or component of the system, including, but not limited to, subscriber connections, in order to enforce compliance with the provisions, standards, and requirements of FCC regulations. (1994 C., § 8.29.150; Ord. No. 65431, § 16, 2002.)

8.29.160 Safety requirements.

A. A grantee shall at all times:

1. Install and maintain its wires, cables, fixtures, and other equipment in accordance with good engineering practices and the requirements of the National Electrical Safety Code promulgated by the National Bureau of Standards, the National Electrical Code of the National Board of Fire Underwriters, and any other applicable codes and standards;

2. Install and maintain all structures, lines, equipment, and connections in, over, under and upon the public rights-of way of the City and other public or private property in such safe condition so as not to endanger human life or health or property;

3. Maintain and implement procedures for responding to reports of dangerous situations and correcting any dangerous situations in a timely manner twenty-four hours a day, seven days a week.

B. The authorized inspection officials of the City shall have the authority to inspect and enforce compliance with the provisions of this section, including inspection of the system's technical equipment and facilities. (1994 C., § 8.29.160; Ord. No. 65431, § 17, 2002.)

8.29.170 Conditions on street occupancy.

A. Work on a grantee's aerial or underground plant, including, but not limited to, any pavements, sidewalks, curbing or other area uprooted or any excavations made by a grantee, shall be done under the supervision and direction of the franchise agency or its designee under permits issued for work by the proper officials of the City, and in accordance with the conditions listed in such permits. A grantee must obtain such permits, without limitation, when relocating plant from

aerial to underground, installing new or additional aerial strand or underground conduits, manholes, handholes or vaults.

1. Such work shall be done in such manner as to protect all existing property belonging to the City and so as to cause the least inconvenience to the inhabitants of the City.

2. A grantee shall comply with City Street Department regulations regarding resurfacing or restoration of pavements, sidewalks, curbing or other areas, or payment for such resurfacing or restoration.

B. A grantee shall make and keep full and complete plats, maps and records showing the actual locations of its facilities located within the public rights-of-way of the City. These maps shall be provided to the franchise agency in both hardcopy and compatible electronic formats, updated at least annually and at such other times as may be specified by the franchise agency. In addition, the grantee shall make "as-built" maps (as that term is used in the cable industry) available to the City for inspection.

C. A grantee shall, at its expense, protect, support, temporarily disconnect, relocate, or remove, any of its property in the public rights-of-way when required by the City by reason of traffic conditions, public safety, street construction, change of street grade, installation of sewers, drains, water pipes, power lines, signal lines, tracks, or any other type of municipal improvements. The City shall give reasonable notice under the circumstances.

D. A grantee shall, on the request of any person holding a building moving permit issued by the City, temporarily raise or lower its wires to permit the moving of buildings. The expense of such temporary removal or raising or lowering of wires shall be paid by the person requesting same, and the grantee shall have the authority to require such payment in advance. The grantee shall be given not less than forty-eight hours advance notice to arrange for such temporary wire changes.

E. All cable, wires, or other similar facilities, shall be underground in those areas of the City where similar facilities of all telephone and electric utilities are underground at the time of installation of the grantee's cable system. In areas where both telephone and electric utilities' facilities are aboveground at the time of installation of the grantee's cable system, the grantee may install its system aboveground, upon the condition that at such time as such facilities are placed underground by all telephone and electric utility companies, the grantee shall likewise place such facilities underground at its sole cost and expense.

F. Each grantee's facilities are subject to the City's vacation authority. In the event that public rights-of-way are vacated by the City and deeded to a private entity, the receiving entity shall be responsible for any costs associated with removal of a grantee's facilities. If agreement cannot be reached between the receiving entity and the grantee as to such costs, the City may require the grantee to remove its facilities for such consideration and upon such terms as the City shall determine to be just and reasonable.

G. No poles or other wire-holding structures shall be erected by a grantee without prior approval of the franchise agency, with regard to location, height, type and any other pertinent aspect. However, no location of any pole or wire-holding structure of the grantee shall be a vested interest and such poles or structures shall be removed or modified by the grantee at its own expense whenever the City determines that the public convenience would be enhanced thereby and provides the grantee reasonable notice under the circumstances.

H. Where poles or other wire-holding structures already existing for use in serving the City are available for use by a grantee, but it does not make arrangements for such use, the City may require the grantee to use such poles and structures if it determines that the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable.

I. Where the City or a public utility serving the City desires to make use of the poles or other wire-holding structures of a grantee but agreement therefor with the grantee cannot be reached, the City may require the grantee to permit such use for such consideration and upon such terms as the City shall determine to be just and reasonable, if the City determines that the use by the City in its governmental capacity for noncommercial purposes would enhance the public convenience and would not unduly interfere with the grantee's operations. (1994 C., § 8.29.170; Ord. No. 65431, § 18, 2002.)

8.29.180 Construction.

A. Each franchise agreement shall specify the time by which initial or required upgrade construction there-

under, if any, must begin, and shall specify that construction will be completed with reasonable speed, pursuant to Article XIX of the Charter.

B. A grantee shall file a map and progress report with the franchise agency at the close of each calendar year, showing the exact areas of the City being served by the cable system and the location and identification of major component parts of the system.

C. A grantee that is constructing its cable system for the first time shall submit monthly construction reports to the franchise agency, beginning the month after the franchise is awarded and continuing until the initial construction required in its franchise agreement is complete. Such a grantee must submit updated as-built system design maps to the franchise agency, or make them available for inspection with notice of their availability, within 30 days of the completion of system construction in any geographic area. These maps shall be developed on the basis of post-construction inspection by the grantee and construction personnel to assess compliance with system design. Any departures from design must be indicated on the as-built maps, to assist the franchise agency in assessing operator compliance with its obligations.

D. A grantee shall promptly notify the franchise agency of any delays known or anticipated in the construction of its system or in providing access to said system. Notices of construction delays shall be promptly made to the Public Utilities Committee of the Board of Aldermen, or to such committee, as determined by the rules of the Board of Aldermen, having jurisdiction over cable television franchises, by the franchise agency.

E. Failure on the part of a grantee to commence and diligently pursue each of the material requirements in its franchise agreement to complete construction pursuant to this section shall be grounds for termination of its franchise pursuant to Section 8.29.090; provided, however, that the City may in its discretion extend the time for the commencement and completion of construction and installation and service to subscribers for additional periods in the event a grantee, acting in good faith, experiences delays by reasons of circumstances beyond its control.

F. At such time as a grantee shall become aware that circumstances beyond its control may prevent its compliance with the provisions of this section, said grantee shall immediately notify the franchise agency, in writing, as to the exact conditions responsible for such delay, and shall show the specific remedy and methods it has undertaken to correct said condition causing the unanticipated delay. Failure to file said written notification by the grantee shall constitute an act of bad faith.

G. In the event the operation of any part of a franchised cable system is discontinued for a continuous period of four months, or in the event such system has been installed in any public rights-of-way without complying with the requirements of the grantee's franchise, or in the event of expiration, termination or revocation of the franchise and, where applicable, an affirmative determination by the City not to renew such franchise, the City may direct a grantee promptly to remove at grantee's cost from the public rights-of-way all such property and poles of such system or part of a system. Any property which the grantee allows to remain in place twelve months after having been notified by the City that it must be removed (or, if specific right-of-way space occupied by grantee's plant is immediately needed for purposes of providing cable service, sixty days after such notice) shall be considered permanently abandoned and shall become the property of the City subject to the provisions of any utility joint use attachment agreement. (1994 C., § 8.29.180; Ord. No. 66084, § 3, 2003; Ord. No. 65431, § 19, 2002.)

8.29.190 Rates charged to subscribers.

A. The City reserves the right to regulate all rates and charges except to the extent it is prohibited from doing so by law.

B. A grantee shall comply with all applicable law and regulations regarding rates and charges. In particular, and without limitation, a grantee shall comply with all rate orders issued by the City unless such orders are stayed by a court or agency of competent jurisdiction.

C. Procedures and local rules for rate regulation shall be established by the franchise agency and confirmed by resolution of the Board of Aldermen in accordance with applicable law. (1994 C., § 8.29.190; Ord. No. 65431, § 20, 2002.)

8.29.200 Minority and women participation, training.

In light of the economic benefits a grantee derives from its use of the public rights-of-way and the racial, ethnic and socio-economic diversity of the population of the City:

A. Any franchise agreement shall address minority and women's business participation through con-

tracts for professional and technical services, construction contracts or subcontracts, and supply contracts; and the hiring of members of minority groups and women by the grantee. Franchise agreements shall also address monitoring, verification, reporting and enforcement methodologies relating to such provisions.

B. Any franchise agreement shall address training of potential employees by grantees in a manner beneficial to residents of the City, and/or funding or other support of programs for such training. Franchise agreements shall also address monitoring, verification, reporting and enforcement methodologies relating to such provisions. (1994 C., § 8.29.200; Ord. No. 65431, § 21, 2002.)

8.29.210 Job skills and training.

A franchise agreement shall address provision by a grantee of non-employee training opportunities and internships. (1994 C., § 8.29.210; Ord. No. 65431, § 22, 2002.)

8.29.220 Other business activities.

A franchise hereunder authorizes only the operation of a cable system as provided for herein, and does not take the place of any other franchise, license, or permit which might be required by law of a grantee. (1994 C., § 8.29.220; Ord. No. 65431, § 23, 2002.)

8.29.230 Continued use of individual antennas protected.

It is not the City's intention to prohibit the erection or continued use of individual television antennas, and no one is or will be required to receive cable service or connect with a cable system. (1994 C., § 8.29.230; Ord. No. 65431, § 24, 2002.)

8.29.240 Grantee may promulgate rules.

A grantee shall have the authority to promulgate such rules, regulations, terms and conditions of its business, consistent with its franchise agreement and applicable law, as shall be reasonably necessary to enable it to exercise its rights and perform its services under this chapter and the rules of the FCC, and to assure uninterrupted service to each and all of its subscribers. Such rules and regulations shall not be deemed to have the force of law, and the grantee shall not, as to rates, charges, service, services, facilities, rules, regulations, or in any other respect, make or grant any undue preference or advantage to any person, nor subject any person to any prejudice or disadvantage. (1994 C., § 8.29.240; Ord. No. 65431, § 25, 2002.)

8.29.250 Discriminatory practices prohibited

A. A grantee shall not deny service, deny access, or otherwise discriminate against subscribers, programmers, or residents of the City on the basis of race, color, religion, national origin, sex, or age. A grantee shall comply at all times with all applicable federal, state, and City laws, and all executive and administrative orders relating to non-discrimination.

B. A grantee shall not discriminate among persons or take any retaliatory action against a person because of that person's exercise of any right it may have under federal, state, or local law, nor may the grantee require a person to waive such rights as a condition of taking service.

C. A grantee shall not deny access or levy different rates and charges on any group of potential residential cable subscribers because of the income of the residents of the neighborhood or local area within the City in which such group resides.

D. Subject to applicable law and except to the extent the City may waive such a requirement, a grantee is prohibited from discriminating in its rates or charges or from granting undue preferences to any subscriber, potential subscriber, or group of subscribers or potential subscribers; provided, however, that a grantee may offer temporary, bona fide promotional discounts in order to attract or maintain subscribers, so long as such discounts are offered on a non-discriminatory basis to similar classes of subscribers throughout the City; and a grantee may offer discounts for the elderly, the handicapped, not-for-profit persons or organizations, or the economically disadvantaged, and such other discounts as it is expressly entitled to provide under federal law, if such discounts are applied in a uniform and consistent manner. (1994 C., § 8.29.250; Ord. No. 65431, § 26, 2002.)

8.29.260 Liability and indemnification.

A. A grantee shall pay, and by its acceptance of a franchise specifically agrees to pay and indemnify the City for, any and all damages or penalties which the City may sustain or be legally required to pay as a result of grantee's installation, operation or maintenance of a cable system under this chapter or in any way resulting from acts or omissions of a grantee hereunder, including its agents, employees and subcontractors, whether or not the acts or omissions complained of are authorized, allowed or prohibited by the City, and whether or

not covered by insurance. The obligations under this Section 8.29.260 shall not limit any right of a grantee to assert any claim against any third party.

B. A grantee shall also pay all expenses incurred by the City in defending itself with regard to any and all damages and penalties mentioned in Section 8.29.260.A. These expenses shall include all out of pocket expenses, including reasonable attorneys' fees and the reasonable value of services rendered by any employee of the City, or expert witness or consultants hired by the City in connection with such defense.

C. A grantee shall maintain, throughout the term of the franchise, liability insurance insuring the City and the grantee with regard to all damages mentioned in Subsection A, above, caused by grantee or its agents.

D. Additionally a grantee shall maintain in full force and effect policies of insurance in forms and minimum amounts hereafter described, to-wit:

1. Workmen's Compensation insurance as provided by the laws of the state;

2. $500,000.00 for bodily injury or death to any one person; $1,000,000.00 for bodily injury or death resulting from any one occurrence;

3. $1,000,000.00 for property damage resulting from any one occurrence;

4. $1,000,000.00 for all other types of liability.

E. The insurance requirements herein shall not be construed to limit the liability of a grantee to the City to the amounts of such insurance.

F. The insurance policies obtained by a grantee in compliance with this section shall be issued by a company with a rating of A+ or better by A.M. Best Company and licensed to do business in the State of Missouri, and a current certificate or certificates of insurance shall be filed and maintained with the franchise agency during the term of the franchise. Said policies shall name the City as an additional insured and shall contain a provision that a written notice of cancellation or reduction in coverage of said policy shall be delivered to the City thirty days in advance of the effective date thereof.

G. All subcontractors used by a grantee in the City shall be licensed to do business in the City pursuant to applicable law.

H. The amounts of any policy required by this Section 8.29.260.D may be increased at the initiative of the City's Comptroller, but not more than twice during the term of a franchise and not more frequently than every five years, as follows: If the Comptroller believes that the amount of insurance provided by any policy required hereunder has become inadequate, the Comptroller shall notify the grantee of such fact, and of the higher amount the Comptroller believes necessary. If within thirty days after such notice the grantee and Comptroller have not agreed on an appropriate amount of insurance, each of them shall within seven days designate a professional insurance broker from the St. Louis metropolitan area, and such designated brokers shall within seven days designate a third such broker. Within thirty days after their designation, the panel of brokers shall notify the Comptroller and the grantee of the insurance which, in their judgment, is appropriate in the circumstances, and grantee shall procure any increased coverage required. In no event shall the amounts of insurance required by Section 8.29.260.D be reduced pursuant to this Section 8.29.260.H. (1994 C., § 8.29.260; Ord. No. 65431, § 27, 2002.)

8.29.270 Performance bond.

A. With its acceptance of a franchise, a grantee shall file with the City Register an executed bond in a form and with a surety acceptable to the City as specified in its franchise agreement to indemnify the City against any loss or damage it may suffer in the event the grantee fails to comply with one or more of the provisions of its franchise. Upon written application by a grantee, the franchise agency may, at its sole option, in writing, permit the amount of the bond to be reduced to reflect the percentage of completion of the grantee's planned construction. Said bond shall be obtained at the sole expense of the grantee and remain in effect for the full term of the franchise or any extension (as distinct from renewal) thereof plus an additional six months thereafter (unless a replacement bond covering that period is agreed to by the City). The grantee and its surety shall be jointly and severally liable under the terms of the bond for any damages or loss suffered by the City as a result of the grantee's failure to comply with one or more of the provisions of its franchise, including a reasonable allowance for the City's lawful attorneys' fees and costs, up to the full amount of the bond.

B. Neither the filing of a performance bond with the agency, nor any insurance coverage, nor the receipt of any damages recovered by the City thereunder, shall be construed to excuse faithful performance by a grantee or limit the liability of a grantee under the terms of its franchise for damages, either to the full amount of the bond or otherwise.

C. A grantee shall with its acceptance of a franchise tender such other security as may be specified by its franchise agreement. (1994 C., § 8.29.270; Ord. No. 65431, § 28, 2002.)

8.29.280 Right of City to intervene.

The City or its designee hereby reserves to itself the right to intervene in any suit, action, or proceeding involving any provision of this chapter. (1994 C., § 8.29.280; Ord. No. 65431, § 29, 2002.)

8.29.290 Fines.

A. Performance of acts prohibited by, or failure to perform acts required by Section 8.29.020, Section 8.29.060.A, Section 8.29.110.C, Section 8.29.110.D, Section 8.29.120, Section 8.29.130, Section 8.29.150, Section 8.29.160, Section 8.29.170, Section 8.29.180, Section 8.29.250, Section 8.29.270 through Section 8.29.330, and Section 8.29.340 of this chapter constitute violations of this chapter. Violations of Section 8.29.060.E.2 and Section 8.29.140 of this chapter shall be punishable by a fine of up to five hundred dollars. Any other violation of this chapter shall be punishable by a fine of up to two hundred fifty dollars. Each day that any violation of this chapter shall continue is a separate violation punishable by the applicable fine.

B. A franchise agreement shall provide:

1. Contractual remedies for the City in the event of violations of the franchise agreement by the grantee;

2. That a violation of the franchise agreement which continues after appropriate notice and opportunity to cure, if any, is a violation of this chapter as well as a violation of the franchise agreement.

C. Any violation of a grantee's franchise agreement which continues after appropriate notice and opportunity to cure, if any, as provided in such franchise agreement, is a violation of this chapter and subject to a fine of up to $500.00.

D. If a grantee is fined for a violation of this chapter pursuant to this Section 8.29.290, such grantee shall not be subject to liquidated damages pursuant to its franchise agreement for the same violation. If a grantee is subject to liquidated damages pursuant to its franchise agreement for a violation, it shall not be fined for a violation of this chapter pursuant to this Section 8.29.290 for the same violation.

E. To initiate the enforcement process under this Section 8.29.290, the franchise agency shall notify the City Counselor that it believes that a violation of this chapter, or of a grantee's franchise agreement, has occurred. In such event, if the City Counselor in his discretion determines that there is a reasonable basis for belief that a violation has occurred, he may prosecute such violation pursuant to Missouri law.

F. In his discretion, the City Counselor may authorize alternative enforcement proceedings by the agency. Such authorization shall be in writing, with notice to any affected grantees. The procedure for such alternative enforcement procedures shall be as follows:

1. *Hearing Procedures.*

a. The regulatory section of the franchise agency shall issue a notice of complaint/violation to a grantee in writing, specifying the nature and time of the violation and proposing a penalty consistent with this section.

b. In response to a notice issued under Section 8.29.290.F.1.a, a grantee may agree to pay the proposed penalty, or may contest such notice. A grantee may contest such notice by notifying the Communications Commissioner in writing within ten (10) business days after the grantee's receipt of the notice issued by the regulatory section. Such a grantee's reply shall include the basis for the grantee's objection and any supporting documents the grantee wishes to have considered in reviewing the notice of violation.

c. Within ten (10) business days after receipt of a grantee's reply, the Communications Commissioner shall notify such grantee and the regulatory section of a date, time and place of a hearing on the matter, which date shall be not less than fifteen (15) and not more than forty-five (45) days from the date of such notification by the Commissioner.

d. The hearing shall be conducted as required by the Missouri Administrative Procedure Act, RSMo Ch. 536, as amended (the APA), for a contested case.

e. Not less than thirty (30) days following the conclusion of the hearing, the Communications Commissioner shall issue a written decision consistent with the APA, finding that the complaint/violation as stated in the notice is proven and imposing an appropriate administrative penalty, or modifying or dismissing the regulatory section's notice of violation. If the Communications Commissioner does not issue such a decision within such thirty-day period, the regulatory section's notice of violation shall be deemed dismissed, provided that the Communications Commissioner may extend such period up to a total of 45 days.

f. Decisions of the Communications Commissioner pursuant to Section 8.29.290.F.1.e are appealable pursuant to the APA.

2. *Hearing Officers.* In lieu of conducting a hearing himself, the Communications Commissioner may appoint a hearing officer to conduct any hearing pursuant to this Section 8.29.290 and submit recommended findings of fact and conclusions of law to the Commissioner. If so, the Commissioner's notice of hearing shall so advise the grantee and the regulatory section within ten (10) business days of receipt of grantee's reply, and shall advise the parties of the name and address of the hearing officer. Hearing officers may, but need not, be attorneys, and may be appointed from any list of duly selected hearing officers maintained by any City department or agency.

3. *Regulations.* The franchise agency may issue regulations concerning enforcement procedures which are consistent with this chapter and applicable law. All grantees shall be provided written notice of and opportunity to comment on any such regulations prior to their applicability as to that grantee. (1994 C., § 8.29.290; Ord. No. 65431, § 30, 2002.)

8.29.300 Rights and remedies are cumulative.

The rights and remedies reserved to the parties by this chapter are cumulative and shall not add or subtract from any other rights or remedies which they may have with respect to the subject matter of this chapter, and a waiver thereof at any time shall not affect any other time. (1994 C., § 8.29.300; Ord. No. 65431, § 31, 2002.)

8.29.310 Delegation of powers.

This chapter shall be administered on behalf of the City by the franchise agency. Any lawfully delegable right, power, or duty of the Board of Aldermen hereunder is delegated to the franchise agency. The franchise agency shall appear before the Public Utilities Committee of the Board of Aldermen every six months to report on the administration of the cable franchise ordinances and on the grantees' compliance with such ordinances. The franchise agency shall appear before the Public Utilities Committee at all other times as determined by the chairman or a majority of the members of such committee to address the administration of the franchise ordinance and any other matter within the jurisdiction of the franchise agency or the Board of Aldermen as related directly or indirectly to cable services in the City of St. Louis. (1994 C., § 8.29.310; Ord. No. 65431, § 32, 2002.)

8.29.320 Resolution of complaints.

A. Responsibility for the administration of any franchise granted hereunder and for the resolution of all complaints against a grantee regarding the quality of service, equipment malfunctions, and similar matters, is hereby delegated to the franchise agency, which is empowered, among other things, to adjust, settle, or compromise any controversy arising from operations of the grantee, either on behalf of the City, the grantee, or any subscriber, in accordance with the best interest of the public; provided that any person aggrieved by a decision of the agency may within fifteen days of the decision appeal the matter in writing to the Board of Aldermen for hearing and determination.

B. In the event of such an appeal, the Board of Aldermen shall assign the matter to the Public Utilities Committee or to such committee having jurisdiction over cable television franchises. Such committee shall hold a hearing on such appeal upon fifteen days' written notice to the appellant, shall receive evidence at such hearing and shall recommend a resolution of the matter to the Board of Aldermen. The Board of Aldermen may, by resolution, accept, reject, or modify the decision of the agency, and may adjust, settle, or compromise any controversy arising from the operations of a grantee under any franchise granted pursuant to this chapter.

C. No adjustment, settlement, or compromise, whether instituted by the franchise agency or by the City, shall be contrary to the provisions of this chapter or of the franchise agreement. (1994 C., § 8.29.320; Ord. No. 65431, § 33, 2002.)

8.29.330 Tampering and theft of service.

A. It shall be a violation of this chapter for any person to knowingly commit any of the following acts:

1. Obtain or attempt to obtain services of a cable operator, by means of artifice, trick, deception, device or other means, without paying all lawful compensation therefor;

2. Assist another person in obtaining or attempting to obtain services of a cable operator without paying all lawful compensation therefor;

3. Connect to, tamper with or otherwise interfere with any cables, wires or other devices used for the

distribution of services of a cable operator if the effect of such action is to obtain services of a cable operator without paying all lawful compensation therefor; or

4. Sell, use, manufacture, rent or offer for sale, use or rental any device, plan or kit designed and intended to obtain services of a cable operator without paying all lawful compensation therefor.

B. The existence on the property of and in the actual possession of any person of any connection wire, or conductor, which is connected in such a manner as to permit the use of services of a cable operator without the same being reported for payment to and specifically authorized by the cable operator shall be sufficient to support an inference that the person intended to deprive such cable operator of any and all lawful compensation for rendering each type of service obtained.

C. It shall be a violation of this chapter for any person to knowingly destroy or damage any property of any kind belonging to a cable operator. (1994 C., § 8.29.330; Ord. No. 65431, § 34, 2002.)

8.29.340 Open video systems.

A. *Applicability.*

1. This chapter shall apply to open video systems to the extent permitted by applicable law, except that Section 8.29.340.B shall apply in place of the following sections: Section 8.29.030.A (franchise applications), Section 8.29.190 (rate regulation).

2. In applying this chapter to an open video system, "grantee" shall be taken to refer to the open video system operator, "cable system" to the open video system, "franchise" to any authorization granted by the City to the open video system operator, and similar terms shall apply similarly.

B. *Application for Open Video System Authorization.*

1. A person proposing to use public rights-of-way to install devices for the operation of an open video system shall first obtain authorization from the City for such use. Such a person may apply for such authorization by submitting an application containing:

a. The name and address of the applicant and an identification of the ownership and control of the applicant, including: the names and addresses of the ten largest holders of an ownership interest in the applicant and affiliates of the applicant, and all persons with three percent or more ownership interest in the applicant and its affiliates; the persons who control the applicant and its affiliates; all officers and directors of the applicant and its affiliates; and any other business affiliation and cable system ownership interest of each named person.

b. A detailed description of the physical facilities the applicant proposes to place in public ways.

c. Any information that may be reasonably necessary to demonstrate compliance with the requirements of federal law and with this Section 8.29.340.

d. An affidavit or declaration of the applicant or authorized officer certifying the truth and accuracy of the information in the application and certifying that the application meets all federal and state law requirements.

2. The City may, at its discretion and upon request of an applicant, waive in writing the provision of any of the information required by this Section 8.29.340.B.

3. Upon application to the City for open video system authorization, the applicant shall pay to the City twenty-five thousand dollars. This payment shall be non-refundable and shall be used to offset in whole or in part any costs incurred by the City in granting the authorization.

C. *Fee In Lieu of Franchise Fee.* An open video system operator shall pay to the City a fee in lieu of and at the same rate as the franchise fee required in Section 8.29.070.A of this chapter, pursuant to the procedures and conditions specified in Section 8.29.070 and generally herein.

D. *Public, Educational, and Governmental Access Obligations.* An open video system operator shall be subject to obligations pertaining to public, educational, and governmental access pursuant to applicable law and to the requirements herein.

E. *Right-of-Way Usage.* An open video system operator shall be subject to all requirements of state and local law regarding authorization to use or occupy the public rights-of-way, except to the extent specifically prohibited by federal law. FCC approval of an open video system operator's certification pursuant to 47 U.S.C. § 573 shall not be taken to confer upon such operator any authority to use or occupy the public rights-of-way that such operator would not otherwise possess. (1994 C., § 8.29.340; Ord. No. 65431, § 35, 2002.)

Chapter 8.29A

CABLE TELEVISION FRANCHISE

Sections:

8.29A.010 Findings.
8.29A.020 Definitions.
8.29A.030 Applicability.
8.29A.040 General customer service practices.
8.29A.050 Telephones, business offices and support services.
8.29A.060 Appointments for service or installation.
8.29A.070 Installations and reconnections.
8.29A.080 Service and repair calls.
8.29A.090 Disconnections and downgrades—Involuntary.
8.29A.100 Disconnections and downgrades—Voluntary.
8.29A.110 Outages.
8.29A.120 Changes in services and rates.
8.29A.130 Notices—Written and oral.
8.29A.140 Billings, charges and credits.
8.29A.150 Deposits, advance payments, refunds and credits.
8.29A.160 Reports and documentation.
8.29A.170 Privacy.
8.29A.180 Mobility-limited subscribers.
8.29A.190 Parental control.
8.29A.200 Exclusive contracts.
8.29A.210 Administration, enforcement and penalties.
8.29A.220 Severability.
8.29A.230 Waiver of requirements.
8.29A.240 Exhibit A.

8.29A.010 Findings.

The Board of Aldermen of the City of St. Louis finds and declares as follows:

A. Cable television systems occupy public property, to the economic benefit of operators of such systems.

B. Residents of the City include many elderly and persons of moderate to low incomes, for whom cable television is an important source of information and entertainment.

C. The quality of cable operators' customer service is an important element of the overall cable television service provided by such operators.

D. Regulation of customer service standards, as hereinafter provided, is in the best interests of the residents of the City and the City itself. (1994 C., § 8.29A.010; Ord. No. 65430, § 1, 2001.)

8.29A.020 Definitions.

As used in this chapter, the following terms, phrases, words and abbreviations shall have the meanings given herein, unless otherwise expressly stated. Words in the present tense include the future tense; words in the plural number include the singular number and vice-versa; masculine and feminine gender references include each other. The words "shall" and "will" are mandatory and the word "may" is permissive. Unless otherwise expressly stated, or clearly contrary to the context, terms, phrases, words and abbreviations not defined herein shall generally be given the meaning set forth in Title 47 of the U.S. Code or in 47 C.F.R. § 76.309 and, if not defined therein, shall generally be given their common and ordinary meaning. The definitions provided herein shall not apply to any reading or interpretation of 47 C.F.R. § 76.309 even though the same terms may be used therein. Terms used but not defined herein which are defined in other City ordinances pertaining to cable television shall have, for the purposes of this chapter, the meanings given them in such other ordinances. Inadvertent failure to capitalize a word shall not affect its meaning.

"After hours" means outside normal business hours.

"City" means the City of St. Louis, a municipal corporation of the State of Missouri, organized and existing under its Charter and the constitution and laws of the State of Missouri.

"Complaint" means a notice of dissatisfaction by a subscriber, whether made orally or in writing to the franchise agency or the City. Informational inquiries shall not be counted as complaints, unless the subscriber was unable to reach the operator to get the information, nor shall requests for specific channels or programming be counted as a complaint.

"FCC" means the Federal Communications Commission and its bureaus.

"Franchise agency" or "agency" means the Communications Division of the Department of Public Utilities of the City or its successor.

"Franchise authority" means the Board of Aldermen of the City.

"Installation" means the connection of the operator's transmission system to a subscriber's television or subscriber-owned or operator-provided terminal equipment, including initial connections, reconnections, activations, upgrades and downgrades of multi-channel services, whether analog or digital, on-site or computerized.

"Normal business hours" means not less than ten (10) hours each day on weekdays (including some evening hours during the week), and not less than five (5) hours on Saturdays.

"Normal operating conditions" means any and all conditions and situations that are within the control of an operator, including, but not limited to, special promotions, staffing levels, regular, peak or seasonal demand periods, maintenance, repair and upgrades of transmission systems, electronic telephone and video equipment of any sort, management decisions, system mapping, employee actions, timing of plant changes or interruptions, corporate decisions, and actions or negligence by the operator which lead to a high volume of calls, including, but not limited to, incorrect bills, rate increases, late bills or fees, changes in service and missed appointments. Normal operating conditions do not include situations not within the control of the operator, including, but not limited to, natural disasters, civil disturbances, public works projects for which no advance notice is given, severe or unusual weather conditions, any local effects of regional or national conditions not within the control of the operator, and power outages which black out geographic areas and are not confined to video transmission system power supplies.

"Operator" means any person to which this chapter is applicable pursuant to Section 8.29.030.A.2.

"Outage" means the loss of all video or audio signals to five (5) or more subscribers along the same trunk or feeder line. Major outage means the loss of all video or audio signals to twenty-five percent (25%) or more of all subscribers in a cable system. Identified outage means (i) a report of no picture/no sound on all channels from five or more subscribers in close geographic proximity, or along the same trunk or feeder line, within twenty minutes, or (ii) determination by an operator without such reports that five or more subscribers are subject to such conditions.

"Person" means any individual, business, partnership, association, joint stock company, organization, corporation, proprietorship, governmental agency or political subdivision, or any natural person.

"Record" means any books or records relating to the operator's system in the City, including, without limitation, any books, receipts, subscriber contracts, service complaint logs, signal leakage logs, performance test results, records of requests for service, work orders, telephone call recordings, subscriber files, computer records, codes, programs, and disks or other storage media, and other like materials.

"Service interruption" means the loss of video or audio signal on one (1) or more cable channels on a cable system to one (1) or more subscribers or severe degradation of picture and/or sound that renders the subscriber unable to use the signals, for any reason.

"Subscriber" means:

1. Any person who lawfully receives cable service from an operator, including commercial as well as residential accounts;

2. The City and its agencies in its capacity as a lawful recipient of such services;

3. Any person previously authorized to receive cable service from an operator;

4. Any person who has applied to an operator to receive cable service from such operator but who has not yet begun receiving such service.

"Trained customer service representative (CSR)" means an employee of an operator who has the authority and ability to perform the following tasks, without limitation, while speaking with a subscriber: Answer billing questions, issue credits and adjust bills, schedule appointments for service and installation, troubleshoot minor service problems over the telephone, arrange changes in service and disconnections, and respond knowledgeably to other subscriber complaints, requests or questions.

"Trained supervisor" means an employee of an operator with authority to modify the actions of a CSR. (1994 C., § 8.29A.020; Ord. No. 65430, § 2, 2001.)

8.29A.030 Applicability.

A. This chapter shall apply to any person that provides cable service within the City.

B. In addition, the City reserves all of its rights with respect to persons other than those that provide cable service within the City. (1994 C., § 8.29A.030; Ord. No. 65430, § 3, 2001.)

8.29A.040 General customer service practices.

A. This chapter sets forth customer service standards that an operator must satisfy. In addition to the requirements set forth herein, an operator at all times shall satisfy any additional or stricter requirements established by FCC regulations, or other applicable federal or state law or regulation, as amended from time to time.

B. An operator shall maintain such equipment and keep such records as are required to enable the franchise authority or franchise agency to determine whether the operator is complying with all standards required by these regulations and other applicable law, as amended from time to time. Failure to keep and maintain such records shall not excuse an operator's failure to comply or to show compliance with this chapter.

C. Failure of an operator to hire sufficient staff or properly train its staff shall not justify an operator's failure to comply with this chapter. The responsibility of any person providing cable service to comply with this chapter shall not be diminished or affected by that person's use of contractors or other agents.

D. The intent of this chapter is to ensure that an operator provides prompt customer service response, support personnel and services sufficient to provide a reasonable level of customer service in the City.

1. At a minimum, an operator must:

a. Have qualified members of the technical staff either present or on-call twenty-four hours a day, seven days a week, to respond to and investigate outages and other major problems;

b. Have all employees give the employee's name (and upon request, an employee ID code) to subscribers or other persons when answering an incoming call or inquiry and when keeping an appointment with a subscriber.

2. A pattern of offensive language by operator personnel may be considered in determining the ability of the operator to meet community needs.

3. An operator shall respond to all subscriber or user inquiries and complaints no more than five (5) business days after the inquiry or complaint, except to the extent a different standard is set forth for specific types of inquiries or requests herein. "Respond" to the inquiry or complaint as used in this paragraph shall mean to contact the subscriber and discuss the actions that have been taken or are being taken to address the subscriber's concerns. (1994 C., § 8.29A.040; Ord. No. 65430, § 4, 2001.)

8.29A.050 Telephones, business offices and support services.

A. *Offices.* An operator must maintain a minimum of two (2) customer service locations located within the City, which can fully accommodate bill payments; equipment disbursement, return or exchange; and in-person discussion with trained customer service representatives. At least one such location must be open for these purposes at least during normal business hours. At least one other such location must be open for these purposes at least for a time period which is one hour per day less than normal business hours.

1. Trained supervisors shall be available in at least one such location at all times when it is open to meet in person with a subscriber or other person requesting such a meeting. All other such locations shall have trained supervisors available to subscribers by telephone at all times when they are open.

2. Operator shall prepare and distribute to the franchise agency an annual calendar of holidays and business days on which the operator's customer service locations required by this Subsection A will be closed. The operator shall provide notice to subscribers regarding hours or dates when such locations will not be open through at least two (2) of the following means: advertisement, answering service/machine voice-mail messages, bill messages, direct mail, or through its cable system (or any other means deemed reasonable by the agency). Notice of any closures other than regularly scheduled dates will be provided at least five (5) days prior to the date of the closure to the extent this is feasible, and if not, then as far in advance as feasible. An operator shall provide voice messaging and door signage notices during any period when the customer service locations required by this Subsection A are closed due to holidays or unusual circumstances during hours when they are ordinarily open.

3. Nothing in this section shall preclude the operator from establishing additional payment sites of its own or via third party vendors.

B. *Telephones.* The operator must maintain at least one local toll-free or collect telephone access number which is available to subscribers twenty-four hours a day, seven days a week. An operator may establish separate telephone numbers for normal business hours telephone access and for after hours repair telephone

access. An operator must have publicly listed telephone numbers for normal business hours and after hours lines, the listings to include descriptions that allow subscribers readily to determine which number is appropriate to call for a given time and subscriber location.

1. Telephones must be answered by a trained customer service representative (not an answering service or machine alone) twenty-four hours a day, seven days a week, so that subscribers may register service complaints, report service problems or outages, and request installations and repairs. Nothing herein shall be construed to prohibit an automated response unit as a first step in answering a customer call so long as the performance standards in Subsection C herein are met. Customer service representatives answering the phones must be able to contact qualified technical staff at all times for response and action in the event of an outage or other major problem.

2. A repair line must be available at all times, including holidays. While such line may be part of an operator's regional call center (rather than specific to the City system), it must be staffed by trained customer service representatives capable of receiving and responding to service complaints and inquiries, and setting up appointments for installations and service calls, generated by City subscribers. If a company representative cannot fully respond to a subscriber call or request after normal business hours, a trained customer service representative or trained supervisor must contact the subscriber and respond to inquiries or problems by the end of the next business day.

3. Trained supervisors shall use their best efforts to respond to subscriber telephone requests to speak with a "manager" or "supervisor" within two hours of the request, but in any case shall respond to such requests no later than the next business day. Periods of natural disasters and outages are exempt from this response time standard, but during such periods such calls must be returned within a reasonable period of time, generally not to exceed twenty-four hours. An operator shall keep a report log of such subscriber requests available for review by the franchise agency.

4. Automated message systems must provide a clearly indicated opportunity to speak with a trained customer service representative.

5. Automated message systems may not disconnect callers without allowing the caller an opportunity to return to the message system and make another menu selection or to speak with a trained customer service representative.

C. *Telephone Performance Standards, Requirements and Reports.* An operator must meet the telephone response standards herein established. An operator must keep separate records for each customer service phone number, reported and filed monthly (showing daily and weekly figures) with the franchise agency pursuant to Section 8.29A.160.A.

1. Under normal operating conditions and during normal business hours, the following standards shall be met no less than ninety percent (90%) of the time, measured quarterly for purposes of compliance:

a. Hold time. Time for telephone answer shall not exceed (i) 60 seconds from the time the call is connected to the operator's telephone system by its local exchange carrier to the time at which any automated response unit menu presents to the caller the option to speak to a trained customer service representative and completes the description of the keys the caller must press to exercise that option, or (ii) 30 seconds from the time at which a caller exercises the option to speak to a trained customer service representative in an automated response unit menu to the time at which the call is answered by a trained customer service representative.

If a call needs to be transferred, transfer time shall not exceed thirty (30) seconds.

b. Busy signal. Callers will receive a busy signal no more than three percent (3%) of the time.

c. Abandonment rate for incoming phone calls may not exceed 5%.

2. An operator must provide reports and supporting documentation demonstrating its compliance with the requirements of this Subsection C, pursuant to Section 8.29A.160. (1994 C., § 8.29A.050; Ord. No. 65430, § 5, 2001.)

8.29A.060 Appointments for service or installation.

A. An operator shall comply with all requirements of this Section 8.29A.060. However, an operator shall be liable for a violation of Subsections A through D of this section only if, under normal operating conditions, it fails to meet such standard for 95% of the total number of appointments, measured quarterly, where each appointment scheduled by the operator for a time during the month counts as one appointment and each appointment scheduled for a time during the

month that constitutes a missed appointment pursuant to Subsection A.2 of this section, for any reason, counts as one missed appointment.

1. In addition to any penalties or liquidated damages attached to such violations, an operator shall compensate subscribers for any missed appointments pursuant to Subsection G of this section, and any failure to so compensate a subscriber shall constitute a separate violation of this chapter.

2. A "missed appointment" is one in which the subscriber is at the appointment address and the operator's field personnel do not arrive within the appointment window the subscriber was given when the appointment was made. Failure of an operator to correctly enter the appointment into the operator's work order logs, or operator's subsequent changes in deployment of field staff, or deletion of the appointment from operator records, shall not be grounds for the operator to claim it did not miss an appointment.

B. Unless otherwise requested by a subscriber, an operator shall perform all subscriber-requested service calls, installations, and changes in service, including upgrades, downgrades, equipment changes, and disconnections, during normal business hours. In addition to the requirements of this Subsection B, an operator may schedule appointments outside normal business hours for the express convenience of a subscriber, if so requested.

C. The appointment window for installations, service calls and upgrades/downgrades will either be:

1. A specific time; or

2. The subscriber's choice of any "appointment window" blocks established by the operator. Such appointment window blocks shall not exceed four (4) hours.

D. Appointment Confirmations, Cancellations and Rescheduling.

1. An operator may not cancel an appointment with a subscriber after the close of business on the business day prior to the scheduled appointment.

2. An appointment may not be cancelled or rescheduled on the day of the appointment by service representatives or technicians who phone or arrive at a time outside the designated appointment window and find the subscriber is not at home. An operator may not satisfy its obligation to keep an appointment by appearing outside the appointment window given to the subscriber.

3. An operator may not cancel or reschedule an appointment on the grounds that a subscriber is not available during the appointment window until the operator has made every reasonable effort to verify both over the phone and in person at the appointment location that the subscriber or other authorized adult is not available at the appointment location within the appointment window or at the specific appointment time. Thus, an operator may not cancel or reschedule an appointment until it has, within the appointment window:

a. Attempted to reach the subscriber by telephone at the number specified by the subscriber to verify that the appointment is still needed and the subscriber or his representative is or will be at the appointment address to meet the technician. Such attempts must include letting the telephone ring at least six times. If the subscriber's telephone is answered by a machine or service, the operator must leave a message giving the time of the call and a separate or direct dispatch phone number or extension that the subscriber may use to call back the dispatchers to confirm the appointment, or request that it be rescheduled; and

b. Attempted to reach the subscriber at the appointment address. When an operator's field personnel arrives for an appointment, such representative shall make every reasonable effort to verify that the subscriber or an authorized adult is at the address, including:

i. Knock and use the doorbell to alert the subscriber;

ii. Contact the building manager or custodian, if such a person is on-site;

iii. Look in the front and back yards so long as this can be accomplished without trespassing on subscriber or other private property, or subjecting field personnel to physical danger (e.g., dog attack).

c. Upon verification in the field that the subscriber is not at the address during the scheduled appointment time or window, field personnel shall leave a door tag or similar notice, with the identity of the person leaving the notice, the time that person determined the subscriber was not at home, and a direct telephone number or extension the subscriber may call to confirm or reschedule the appointment.

4. If an operator's representative is running late for an appointment with a subscriber and will not be able to keep the appointment as scheduled, the subscriber must be contacted within the appointment win-

dow, and if the appointment must be rescheduled, it shall be at the earliest time that is convenient for the subscriber, including later the same day.

E. At the time an appointment is scheduled, it shall be an operator's standard practice to inform a subscriber of its service procedures, required payments, any foreseeable delays, and phone or field verification procedures which are related to the appointment, including those circumstances in which the operator may cancel the appointment. When an operator offers a time or appointment window to a subscriber, the operator is responsible for ensuring that the time or window is actually available and for ensuring that the operator's records and work order accurately reflect the information given to the subscriber.

F. Emergency service calls and service capability enabling the prompt location and correction of outages or substantial system malfunctions shall be available twenty-four (24) hours a day, seven (7) days a week.

G. A subscriber who experiences a missed appointment shall receive remedies pursuant to Exhibit A of this chapter (Section 8.29A.240), unless the operator and the subscriber agree on a different remedy. However, these remedies shall not apply in cases where unusual physical conditions make it impracticable to keep the appointment, if the operator notifies the subscriber promptly (in advance if possible, and otherwise as soon as practicable thereafter) and offers to reschedule the appointment.

H. An operator is required to document all subscriber appointment dates and times, including those scheduled and completed, as well as those missed, cancelled, or rescheduled for any reason. If someone other than the subscriber calls an operator to cancel or reschedule an appointment, the operator shall record such person's name and asserted relationship to the subscriber.

I. The franchise agency shall have the power to adjust, settle and compromise disputes and to resolve complaints against a grantee if a subscriber demonstrates that he/she was available at the appointment location when the operator failed to keep the appointment. The franchise agency may require an operator to produce records so that the agency can ascertain compliance with this section. Such records may include daily reports for all appointments kept, made, cancelled or rescheduled by the operator, individual work order and appointment information, or other operator records reasonable to ascertain the facts relating to a particular situation or time period. (1994 C., § 8.29A.060; Ord. No. 65430, § 6, 2001.)

8.29A.070 Installations and reconnections.

A. Under normal operating conditions, installations must be completed within seven (7) business days after an order is placed, unless the subscriber asks for a later date. The operator may require advance payment of the installation fee and the first month's service charges. Installations which require more than one hundred twenty-five (125) feet of drop cable from the tap, or which would occur in buildings not wired for cable service, may take longer than seven (7) business days. In such cases, the operator shall provide the subscriber and/or the agency with a written explanation and a proposed schedule for installation, but it shall be completed within sixty (60) days in any case.

B. Subsection A of this section shall not apply if the service or product requested by the subscriber is not generally available from the operator in the subscriber's area (for example, if an upgrade necessary to provide the service has not yet been completed in that area).

C. Reconnections due to erroneous disconnections based on the operator's billing or technical errors must be completed at no charge the same day as the subscriber notifies the operator of the disconnection to the extent reasonably possible, but in any event within twenty-four (24) hours. The subscriber must be provided a credit for time out of service.

D. Reconnections after a disconnection attributed to non-payment of bills must be completed within seven (7) business days after payment has been received by the operator. In such instances only, operator may require that payment by check has cleared subscriber's bank before the payment is deemed received by the operator.

E. Installations shall not be considered completed, nor may a subscriber be billed for services, until all services and equipment the subscriber is told would be installed as part of that installation are in full working order.

F. A building owner's preference as to the point of entry into a building shall be observed whenever feasible. Runs in building interiors shall be as unobtrusive as possible and outlets located for the convenience of the subscriber. The operator shall use due care in the process of installation and shall repair or restore any damage to the subscriber's property caused by said installation work. Such repair or restoration shall be undertaken

as soon as possible after the damage is incurred, shall be subject to reasonable subscriber approval of the corrective action and shall be completed within no more than thirty (30) days after the damage is incurred, unless this is not reasonably possible, in which case it shall be completed as soon as possible. Should such repair or restoration not be completed within the thirty-day period, the operator shall notify the franchise agency and the franchise agency shall have authority to review disputes between an operator and subscribers as to such damage and to require reasonable corrective action by an operator.

G. The provisions of Section 8.29A.060 regarding appointments shall apply, without limitation, to appointments for installations. (1994 C., § 8.29A.070; Ord. No. 65430, § 7, 2001.)

8.29A.080 Service and repair calls.

A. When a subscriber requests a service appointment or repairs for a problem with cable service, or the need for repairs otherwise becomes known to an operator:

1. Any service interruption (including loss of video and audio signal, or "no picture/no sound") on one or more channels must be responded to promptly and fully repaired within 24 hours, including provision of any necessary working equipment and arrival of another service technician qualified to repair the problem if the first technician cannot.

2. Work on all other requests for service or repair must begin by the first business day after the subscriber reports the problem to the operator, and must be completed within 72 hours of the subscriber's initial request.

B. Repairs or maintenance work not completed, or referred to another technician, by the original technician responding to a request for repair or service call shall be resumed by the operator within 24 hours of the original service call.

C. Repairs or corrective action not requiring the operator to enter the interior of subscriber premises shall not require a subscriber to make an appointment, shall not require the subscriber to be available on-site, and shall not be delayed on account of the operator's inability to contact the subscriber. Such repairs shall also be completed within the deadlines specified above.

D. With respect to deadlines specified in this Section 8.29A.080:

1. An operator shall complete the work in the shortest possible time where the work could not be completed in the time periods specified herein even with the exercise of due diligence.

2. The requirements of Subsection A of this section shall not apply during periods outside of normal operating conditions. Such periods must be documented by the operator to the reasonable satisfaction of the franchise agency.

3. Failure of an operator to accurately and timely locate or move underground plant upon request by any authorized person shall not be cause for a waiver of the 24- and 72-hour requirements for repairs.

E. Except as applicable law requires, no charge shall be made to a subscriber for a service appointment or repairs necessary to correct a problem with cable service, unless it can be documented that the problem was caused by the subscriber.

F. Credits for service interruptions.

1. An operator shall automatically provide a credit or refund whenever the operator is aware that a subscriber has not received service for which the subscriber has paid for four hours or more.

2. The amount of the credit shall be based on the severity or duration of the problem and the channels affected, but shall not be less than one-half day's cable rate.

3. A credit under this Subsection F shall not be required where (i) the service interruption is part of a planned and approved outage for a limited period that is necessary for plant upgrades, maintenance, repair, or required testing; or (ii) the operator shows that the subscriber caused the service interruption.

4. However, a subscriber is entitled to a full refund for a pay-per-view event that the subscriber ordered from the operator that is interrupted by a service interruption.

5. A credit under this Subsection F shall be applied upon a subscriber's reasonably prompt request. Such credit shall also be applied without a subscriber's request in any case where the operator can identify the affected subscribers. Credits are not required, however, when the operator can demonstrate that the subscriber seeks a refund for outage or impairment which the subscriber has caused.

G. The franchise agency is authorized to adjust, settle and compromise disputes and to resolve complaints against a grantee with respect to service and repair calls.

H. The provisions of Section 8.29A.060 regarding appointments shall apply, without limitation, to appointments for service and repairs. (1994 C., § 8.29A.080; Ord. No. 65430, § 8, 2001.)

8.29A.090 Disconnections and downgrades—Involuntary.

A. *Disconnection for Non-Payment.*

1. No subscriber may be disconnected for non-payment other than at a time when trained customer service representatives with authority to cancel the disconnection are available for the subscriber to contact by telephone.

2. No subscriber may be disconnected for non-payment if the subscriber has informed the operator or the franchise agency of a billing dispute or lost payment, until a reasonable period has elapsed for the operator or the franchise agency respectively to resolve such billing dispute or lost payment and, if necessary, for the subscriber to submit a replacement payment.

3. No subscriber may be disconnected for non-payment due to an operator's failure to timely or correctly post payments.

4. No subscriber may be disconnected for failure to pay a portion of a bill attributable to services delivered after the "stop bill date" as that term is used in Section 8.29A.100.A.

5. No subscriber may be disconnected for non-payment if payment of outstanding balances is made at operator's office or received by the operator at its office before the date scheduled for disconnection, including the last business day before the scheduled disconnection. It is the operator's responsibility to monitor such payments and cancel work orders for disconnections.

6. No subscriber may be disconnected by an operator for non-payment less than twenty-five (25) days after the original due date of a delinquent balance, or less than eight (8) days after the operator sends (by first-class mail) written or telephone notice of the intent to disconnect, whichever is later.

B. *Procedure for Involuntary Disconnection.*

1. Before a subscriber may be disconnected, the operator must give prior notice by at least two (2) of the following methods, each at least five business days prior to disconnection:

a. Messages in bold or large type on current bill;

b. Postcards, other mailings, or prominent bill stuffers;

c. Phone call to the subscriber, or message left on a telephone answering machine.

2. If an operator initiates a disconnection at the subscriber's location, the technician performing the disconnection must first attempt to reach the subscriber on-site by knocking or ringing at the front door or looking in the backyard to inform the subscriber about the pending disconnection. If the subscriber is not present, but the premises are in the care and control of another person, the operator's representative shall allow such person to attempt to contact the subscriber prior to the disconnection. If such person contacts the subscriber, the operator's representative shall speak to the subscriber by phone and attempt to arrange for payment of the overdue amount or a resolution of the matter prior to starting the disconnection.

3. If the subscriber pays the outstanding balance for current period services at the time the operator attempts a disconnection at the subscriber's premises, the operator shall not disconnect the subscriber.

4. Disconnections for non-payment which are made at the subscriber's location when the subscriber is not home must be accompanied by a written notice, such as a door tag, informing the subscriber that a technician has made changes to the service and providing an operator telephone number and customer service location address so that the subscriber may contact the operator for further information. Disconnections made by computer require the operator promptly to mail information to the subscriber containing the same information and describing the amount of payment in arrears as of the disconnection date and applicable reconnection charges and procedures.

C. *Forms of Payment.* An operator may reasonably specify forms of payment that are acceptable to avoid disconnection (such as cash, checks, money orders or credit card payments) based on the subscriber's payment history, security issues in the field, or other criteria.

D. *Disconnection Due to Signal Leakage.*

1. An operator may disconnect a subscriber that causes signal leakage in excess of federal limits.

2. An operator may effect such disconnection without advance notice, provided that the operator shall first attempt to contact the subscriber on-site about the problem.

3. If an operator disconnects a subscriber due to signal leakage, the operator's representative must leave a door tag with an explanation of the problem and a telephone number to call.

4. Once the problem is corrected, the operator shall reconnect the subscriber at no charge. The subscriber shall be eligible for appropriate credits pursuant to Section 8.29A.080.F.5.

5. For purposes of this Subsection D, use of FCC-approved navigation devices does not in and of itself constitute signal leakage.

6. An operator must maintain dated, address-based incident logs of all disconnections attributed to signal leakage, including detailed description of exact location at which the leakage reading is strongest.

E. *Other Conditions.* Nothing in this chapter is intended to prevent an operator from disconnecting, delaying, limiting or denying cable service to any person who:

1. Causes damage to the operator's cable system or equipment;

2. Threatens the safety of an operator's field technicians in the course of their duties;

3. Illegally receives cable services for which that person has not paid;

4. Attempts to order premium or pay-per-view service after that subscriber has chronically failed to pay for such services in the past;

5. Repeatedly attempts to render payments from checking accounts with insufficient funds.

If an operator disconnects, delays, limits or denies cable service to a subscriber pursuant to this Subsection E, the operator will give written notice to the subscriber of the reason and of the subscriber's right to contact the franchise agency. An operator must maintain copies of such written notice to the subscriber in its files.

F. *Reconnection.*

1. After a permissible disconnection for non-payment, the operator shall reinstate service within seven (7) business days after payment by the subscriber of all outstanding charges in full, subject to a subscriber's rights with respect to billing disputes or lost payments under Subsection A.2 of this section.

2. The operator is not required to reconnect a subscriber with an undisputed outstanding balance unless extenuating circumstances are applicable in the judgement of the operator and the franchise agency, after joint consultation.

3. After a disconnection, delay, limitation or denial for cause as described in Subsection E of this section, an operator is required to restore service only after the subscriber has provided adequate assurance that he/she has ceased, and will not resume, the practices which led to the disconnection, and paid all proper fees and charges, including any reconnection fees or amounts owed to the operator for damage to its cable system or equipment. (1994 C., § 8.29A.090; Ord. No. 65430, § 9, 2001.)

8.29A.100 Disconnections and downgrades—Voluntary.

A. A subscriber may order a disconnection or downgrade of service or equipment at any time and may select any business day occurring 24 hours or more after ordering such disconnection or downgrade, as the date on which the services will end (the "stop bill date").

B. As long as the subscriber reasonably cooperates with the operator's removal of any canceled converters or similar equipment from the subscriber's premises:

1. The operator shall promptly disconnect or downgrade any subscriber as of the "stop bill date;"

2. The operator shall not impose a charge for canceled services which are delivered after the "stop bill date;"

3. The operator shall not charge fees for equipment after the "stop bill date;"

4. Unless the subscriber requests otherwise, removal of charges, refunds or credit amounts will be applied to the account as of the "stop bill date," regardless of when the disconnection or downgrade occurred in the field.

C. While subscribers may be asked to deliver such equipment to the operator's office, they shall not be required or forced to do so as a condition of refunds, credits or return of deposits. A subscriber may only be held liable for unreturned equipment if, within two weeks of disconnection, or by the last date the subscriber occupies the premises (whichever is earlier):

1. The subscriber refused an appointment for equipment pickup during a specified appointment window;

2. The subscriber failed to keep such appointment or failed to return such equipment when visited by the operator; or

3. The subscriber could not be contacted by the operator for a period of five business days.

D. Subscribers may not continue to be charged for services or equipment due to operator delays in completing disconnections or downgrades or equipment removal after the "stop bill date."

E. Any charges for services or equipment with a "stop bill date" which is seven or more business days prior to the subscriber's next billing date may not appear on the subscriber's next bill.

F. Subscribers may not be charged late fees, involuntarily disconnected, or otherwise penalized for excluding from their payments amounts billed for canceled services after the "stop bill date."

G. Following the "stop bill date" for a full disconnection, the operator must promptly issue a full or pro-rated refund check for any pre-paid monthly charges.

H. No charge may be imposed on a subscriber for any full disconnection, and downgrade fees for partial cancellation of service must comply with the requirements of federal law and local rate orders.

I. Full refunds of service and installation charges shall be given for downgrades or disconnections requested in accordance with any "money back guarantee" conditions established in promotional campaigns for any tier or other cable service. Downgrade fees may not be charged if such services are canceled within such promotional windows. If an operator is fined by another entity for a failure to provide such a refund or for charging such a fee, the operator shall not be subject to a penalty or liquidated damages for that event pursuant to this subsection.

J. Subject to applicable federal law, subscribers may downgrade or disconnect at no charge within 30 days after they receive a bill with a rate increase for that service or equipment. For purposes of this subsection, "rate increase" shall include (but not be limited to) unilateral price increases to all subscribers, discontinuation of special price promotional packages held by a particular subscriber, and changes in premium service prices at the end of a promotional period. This section shall not apply to a rate increase where a subscriber has agreed to pay for a service or equipment at a normal price after a period charged at a lower promotional rate, and the rate increases to the normal price in accordance with that agreement.

K. Operators must notify subscribers who have fully disconnected service of the terms and conditions under applicable law regarding both parties' rights with respect to subscriber premises cable service wiring. Except as otherwise provided under applicable law or agreement binding on a building owner, any such building owner may require an operator to promptly remove the operator's wiring from the owner's building at no charge to the building owner. (1994 C., § 8.29A.100; Ord. No. 65430, § 10, 2001.)

8.29A.110 Outages.

A. An operator shall take timely measures to post appropriate messages, including areas or zip codes affected, on its telephone system automatic response unit to notify subscribers of any identified outages. Such messages should also provide instructions for subscribers whose converters or navigation devices may not be functioning as a result of the identified outage. Periods of natural disasters are not included in this requirement.

B. Within one (1) hour after an identified outage, service technicians will respond and use all available means to correct the outage in the shortest possible time.

C. Operator will maintain reports on the cause, area and duration and repair of all outages.

D. The requirements of this section (8.29A.110) are in effect 24 hours per day, 7 days a week.

E. An operator may intentionally interrupt service only for good cause and the shortest possible time, including interruption for system upgrade, repair and maintenance, for emergencies or to the extent necessary to fix an affected subscriber's problem. Routine maintenance shall occur at times that affect the fewest subscribers, generally between 2 a.m. and 6 a.m. An operator shall notify the franchise agency no less than twelve (12) hours prior to a planned service interruption. In addition, an operator shall post override notices on all its system's channels to advise subscribers prior to planned service interruptions. (1994 C., § 8.29A.110; Ord. No. 65430, § 11, 2001.)

8.29A.120 Changes in services and rates.

A. Before an operator unilaterally alters equipment, the basic service tier, a cable programming tier, another tier, or any other cable service, or the rate for any such equipment or service, it must provide the franchise authority and franchise agency sixty (60) days' advance written notice. The operator shall also provide subscribers with thirty (30) days' advance written notice by any reasonable means and explain the substance and effect of such alteration. Such notice is required for all regulated and unregulated rates for any and all services, to any and all classes of subscribers, including, without limitation, governmental and educational subscribers; commercial account subscribers; and subscribers of optional tier or other cable services.

B. Changes not within the control of the operator are subject to notice as soon as reasonably possible. Operator must also notify subscribers at the time the alteration is made of their right within thirty (30) days after the alteration to elect to continue receiving, or to

cancel at no charge, any service so altered, or combination of services which includes an altered service. Such notice must be clear and obvious.

C. Negative option billing is prohibited except to the extent that federal law specifically provides that operators are permitted to make alterations by negative option. For purposes of this subsection, "negative option billing" shall be defined as charging a subscriber for any service or equipment that the subscriber has not affirmatively requested by name. The franchise agency shall have the power to adjust, settle and compromise disputes and to resolve complaints. The operator shall have the burden of proof with respect to any issues regarding negative options. Subscribers may not be charged an upgrade or downgrade fee in order to receive, block or cancel services changed by an operator. Notwithstanding the foregoing, acts by an operator that federal law has deemed permitted under federal law shall not be considered negative options for purposes of this subsection.

D. If an operator plans to provide a free premium channel, the operator shall, no later than ten (10) days before such premium channel is offered without charge, notify all subscribers of its plans, including the time periods involved, a general description of the nature of the content of the offered premium channel, and the subscriber's right under this chapter to have the channel blocked at no charge. For purposes of this subsection only, "premium channel" shall mean any pay service offered on a per-channel or per-program basis.

E. Rates for services, and equipment are subject to all applicable federal, state, and local laws and rules. If an operator implements rates that exceed rates established by City rate orders, it must notify subscribers that such rates are in dispute and (where appropriate) are under appeal.

F. An operator must notify the franchise agency regarding any changes in rates or billings or services affecting governmental and educational subscribers in writing no less than ten (10) business days in advance of the actual change or notice to governmental or educational subscribers of such change, whichever comes first. The franchise agency shall have authority to determine if such charges comply with this chapter and the terms and conditions of any other applicable law or contracts. (1994 C., § 8.29A.120; Ord. No. 65430, § 12, 2001.)

8.29A.130 Notices—Written and oral.

A. An operator shall comply with all notice provisions established by applicable law or in its franchise agreement.

B. An operator shall provide the following written information to each subscriber on each of the following topics at the time of installation and at least annually thereafter, and at any time upon request. Copies of all such materials provided to subscribers shall also be provided to the franchise agency.

1. Description of products and services offered, including prices and options for cable services, associated equipment and installation charges, and conditions of subscription to programming and other services and facilities;

2. Description of the operator's installation and service maintenance policies, delinquent subscriber disconnection and reconnection procedures, and any other of its policies applicable to its subscribers;

3. Instructions on how to use the services and equipment, including the capabilities and limitations of such equipment;

4. Instructions for how to place a service call;

5. Description of the operator's billing and complaint procedures, and the address and telephone number of the franchise agency office responsible for receiving subscriber complaints;

6. Copy of the service contract between the operator and subscriber, if any;

7. Notice regarding subscribers' privacy rights pursuant to applicable law;

8. Notice of the commercial availability of universal remotes and other compatible equipment clearly indicating that a list of specific brands and models shall be provided to any subscriber upon request;

9. The operator's customer service telephone numbers; the addresses and hours of any of the operator's customer service locations in the City; and the address and telephone number of the franchise agency.

C. All written notices to subscribers regarding changes in operator procedures and practices affecting subscribers in the City shall be provided to the franchise agency prior to printing and distribution. An operator shall make a good-faith effort to provide copies of such notices early enough that the agency, if it chooses, can review and comment on them. An operator's distribution of notices containing information that

is contrary to applicable law, is fraudulent, or would reasonably be expected to mislead subscribers as to their rights, is a violation of this chapter.

D. Every operator's promotional materials, announcements, advertising of service, and oral or written sales presentations to subscribers shall conform to applicable laws governing such advertising and, to the extent to which price terms are presented in such materials or presentations, shall clearly and accurately disclose such price terms.

E. In addition to (but not in duplication of) any notice required under Section 8.29A.120.A, subscribers shall be notified in writing of any changes in rates, programming services or channel positions, or any significant changes in any other information required to be provided by this section. An operator may also provide additional notice by any other means, such as announcement on its cable system. These notices shall be made:

1. As soon as possible when the change is out of the operator's control; and

2. In accordance with applicable federal, state and local law, including this chapter, when the change is within the operator's control.

F. Each operator shall maintain a public file containing all notices provided to subscribers under this chapter as well as promotional offers made to subscribers. Copies of all such notices, rate cards, promotional or special offers sent to subscribers, and any copies of blank agreements used with subscribers, shall be promptly filed with the franchise agency.

G. Notices to subscribers, including, but not limited to, notices of rate and service changes, that are published solely in the legal section of local newspapers do not constitute "reasonable means" as that term is used in this chapter or in 47 U.S.C. § 552(c) as applied in the City. (1994 C., § 8.29A.130; Ord. No. 65430, § 13, 2001.)

8.29A.140 Billings, charges and credits.

A. Bills shall be clear, concise and understandable.

1. Appropriate office addresses and phone numbers for billing inquiries or disputes shall be clearly marked on each bill.

2. Bills shall be fully itemized and clearly delineate all activity during the billing period, with an itemization of at least the following: basic tier charges, any other tier charges, premium charges, pay-per-view charges, optional charges, payments, credits, rebates, late fees, and pro-rated amounts for service upgrades, downgrades and disconnections. An operator's first billing statement after new installation, reconnection or service change shall be pro-rated to reflect the service period. Any unusual billing debits, credits, or changes in service must be clear and understandable. The franchise agency will work with an operator at the operator's request to accommodate the operator's reasonable space limitations to ensure that the results are clear and understandable.

3. An operator's billing statement must show a specific payment due date. Bills shall clearly and conspicuously indicate the past due date and, if applicable, the action a subscriber must take to avoid disconnection.

B. All operators must take reasonable steps to ensure that subscribers understand the terms and obligations of their subscriptions in advance.

1. Promotional materials must prominently specify the periods for which any special prices or discounts remain in effect and the prices to which they return at the end of such periods (unless they return to a price the subscriber is currently paying).

2. Prior to upgrades or changes in a subscriber's service package, an operator's written materials and/or oral presentation shall fully disclose to the subscriber whether the subscriber is able to cancel the upgraded services and voluntarily downgrade to the same package of service at the same price as before the upgrade or change.

3. Prior to upgrades or changes in a subscriber's service package, an operator's written materials and/or oral presentation shall fully disclose to the subscriber any charges or penalties for downgrading or removing services at a later date.

4. Subject to applicable law, at the end of any special price offer or promotional period, subscribers shall have the right to cancel any cable services with no downgrade charge.

In the case of pay-per-view or pay-per-event programming, promotional materials must clearly and accurately disclose all price terms. In the case of telephone orders, an operator shall take appropriate steps to ensure that price terms and restrictions are clearly and accurately disclosed to potential subscribers before the order is accepted. Operator shall provide the franchise agency with verification on a quarterly basis that the requirements of this paragraph are being met.

C. Subscribers must have adequate time to pay bills before imposition of late fees or penalties for non-payment. Any balance not received within the time period after the due date specified in Subsection C.2 below may be assessed a processing charge (late fee) to the extent not in conflict with applicable federal or state law.

1. Subscribers must have a minimum of eighteen (18) days between the date the operator mails the bill by first-class mail and the due date on the bill. Due dates generally may not be earlier than the tenth day of the billed period.

2. An operator shall provide subscribers a grace period of an additional five (5) business days after the due date before the operator may impose a late fee for non-payment. Late fees may not actually be applied to any account until the billing cycle cutoff date on which all posted payments and charges for the following month's bill are applied.

D. Subscribers will not be responsible for late fees resulting from delays in operator's billing system, payment collection or posting practices or for any failure by an operator to timely or correctly bill the subscriber or to properly credit the subscriber for timely payment made.

E. Credits for erroneous late fees will be applied to all affected accounts automatically by the operator prior to generating the next subscriber bill.

F. Late fees may not exceed the lesser of (1) any state statutory limits or (2) any court-ordered limits.

G. No subscriber's billing cycle shall be changed arbitrarily. An operator shall use its reasonable best efforts to accommodate one-time requests for specific billing cycles by subscribers on fixed incomes.

H. Disputes about billings will be settled by the franchise agency in accordance with this chapter. No subscriber may be disconnected for non-payment except as provided in Section 8.29A.090.A.2 if the operator has written notice of a billing dispute or lost payment. The agency will evaluate repeated complaints by individual subscribers for legitimacy, to avoid the complaint process being used inappropriately.

I. Credits must be issued for outages pursuant to Section 8.29A.080.F.

J. An operator may require payment by credit or bank cards for pay-per-view orders, once the outstanding monthly balance has exceeded an amount deemed appropriate by the operator.

K. Operator must address complaints about billings within five business days after the complaint is received. Credits for service shall be issued no later than the subscriber's next billing cycle after determination that the credit is warranted. (1994 C., § 8.29A.140; Ord. No. 65430, § 14, 2001.)

8.29A.150 Deposits, advance payments, refunds and credits.

A. An operator may require payment of undisputed past due amounts prior to installation or reconnection. An operator may require at time of installation an advance payment equal to one month of services ordered plus the cost of the installation. An advance payment for installations or other services not received by a person must be refunded within 35 days. Any subscriber deposit required by an operator shall bear interest at seven percent per annum. Upon disconnection, all equipment deposits, with interest, shall be returned to the subscriber within 35 days after all operator equipment is returned and all other outstanding financial obligations of the subscriber to the operator have been met.

B. Credits for service shall be issued no later than the subscriber's next billing cycle after determination that a credit is warranted.

C. Refunds or reimbursements rather than credits, including any monetary credit resulting from a missed appointment, shall be issued to subscribers who:

1. Are no longer receiving cable service for which they have already paid;

2. Pre-paid for installations or upgrades which were not completed for any reason if the subscriber is no longer receiving cable service from the operator;

3. Experience damages or theft as a result of operator or subcontractor actions in connection with installation or service.

D. Operator checks for refunds and reimbursements shall be issued and mailed to the remitter of payment within thirty-five (35) business days:

1. After a request for refund or reimbursement is made by the subscriber/remitter subsequent to the event giving rise to the need for refund or reimbursement; or

2. If there is a dispute, after determination that refund or reimbursement is warranted or ordered by the franchise agency. (1994 C., § 8.29A.150; Ord. No. 65430, § 15, 2001.)

8.29A.160 Reports and documentation.

A. An operator shall submit to the franchise agency fifteen (15) days after the end of each month, in a form reasonably acceptable to the agency, the following reports. These reports shall distinguish on a preliminary basis between normal operating conditions and any periods not under normal operating conditions.

1. Telephone response statistics that provide documentation of operator's performance pursuant to Section 8.29A.050.C of this chapter, including, but not limited to, operator's own statistics and measurements and any independent third party studies made available to the operator by its telephone service provider during the applicable time period. Separate statistics shall be provided for normal business hours and for periods outside normal business hours.

2. A summary of installations, indicating the number for each day completed, cancelled and rescheduled, and the reasons for same.

3. A summary of service calls, including the number and nature of the calls received and an explanation of the causes and dispositions of such calls.

4. A report reflecting the credits issued for missed appointments.

5. The total number of subscribers.

6. A summary of identified outages, including each outage's date, location, cause, and approximate duration and area affected.

B. The franchise agency may, upon reasonable prior notice, require an operator to submit the following additional operator reports, records or documentation reasonably necessary to verify compliance with this chapter:

1. Complete list of all recorded subscriber complaints to the grantee and measures taken to resolve them;

2. Subscriber location service call and installation records/work orders, including, but not limited to, the date and time of any visits to a subscriber location scheduled or rescheduled by the operator;

3. Signal leakage logs and incident reports;

4. Technical records regarding performance related to service under this chapter;

5. Operator's subscriber payment and posting documentation, which may include information maintained by its billing service.

C. Upon the franchise agency's request, an operator shall also make all other supporting records for reports, and for compliance with this chapter, available to the franchise agency at a location within the St. Louis metropolitan area.

D. Any report or record required to be submitted to the franchise agency pursuant to this chapter shall be forwarded or made available to the franchise agency or, if so directed by the franchise agency, to the franchise authority.

E. An operator's failure to collect the necessary information shall not be a defense for any inaccuracy or incompleteness in the operator's reports required in this Section 8.29A.160. (1994 C., § 8.29A.160; Ord. No. 65430, § 16, 2001.)

8.29A.170 Privacy.

The following provisions with respect to subscriber privacy are deemed to be consistent with applicable federal and state law as of the date of enactment of this chapter. This provision shall not be deemed to waive any operator's right to contest this provision based on any change in federal or state law after that date of enactment.

A. If the franchise agency requests aggregate subscriber information, without personally identifiable information, pursuant to this chapter, an operator shall not refuse to provide such information on grounds of subscriber privacy.

B. If a subscriber provides personally identifiable information to the franchise agency in order to request the franchise agency's assistance, an operator shall not refuse on grounds of subscriber privacy to discuss such information, or the subscriber's concerns related to that information, with the agency.

C. To the extent a subscriber's prior written or electronic consent may be required by applicable law, if the subscriber provides such consent either directly or via the franchise agency, the operator shall not refuse on grounds of subscriber privacy to provide that subscriber's personally identifiable information to the franchise agency, to the extent consented to by the subscriber.

D. Prior consent delivered to the operator by facsimile (by way of illustration and not limitation) shall be deemed sufficient to constitute prior written or electronic consent for purposes of this Section 8.29A.170 and 47 U.S.C. § 551.

E. An operator shall not object to disclosing subscriber information to the City if it has provided the subscriber the opportunity to prohibit or limit such

disclosure in accordance with 47 U.S.C. §551(c)(2)(C)(i), unless to do so would expressly violate other applicable law. (1994 C., § 8.29A.170; Ord. No. 65430, § 17, 2001.)

8.29A.180 Mobility-limited subscribers.

A. Upon request of mobility-limited subscribers, an operator shall arrange for delivery, pick-up or exchange or replacement of converters or other operator equipment at the subscriber's address, or by a satisfactory equivalent such as provision of a pre-paid postage mailer.

B. An operator shall make special arrangements to accommodate subscribers who may be unable to answer a door or telephone in response to a request for an appointment. Work orders shall indicate any special instructions or directions necessary to accommodate a mobility-limited subscriber. (1994 C., § 8.29A.180; Ord. No. 65430, § 18, 2001.)

8.29A.190 Parental control.

A. An operator shall make available to any subscriber upon request the options of blocking both video and audio portions of any channel(s) of video programming entering the subscriber's home. This control shall be provided at no charge, except to the extent that federal law specifically provides that the operator must be permitted to charge a subscriber, as well as a reasonable security deposit for the use of any device provided by the operator.

B. All subscribers must be notified of the availability of blocking devices on an annual basis. (1994 C., § 8.29A.190; Ord. No. 65430, § 19, 2001.)

8.29A.200 Exclusive contracts.

No operator shall require the exclusive right to serve a subscriber, person or location as a condition of offering cable service or extending a cable system. (1994 C., § 8.29A.200; Ord. No. 65430, § 20, 2001.)

8.29A.210 Administration, enforcement and penalties.

A. Administration.

1. This chapter shall be administered on behalf of the City by the franchise agency.

2. An operator shall be responsible for all of its agents, subcontractors, and employees, with respect to the operator's compliance with this chapter.

3. All notices of deficiencies, noncompliance, and changes in requirements issued by the franchise agency shall be in writing.

B. Penalties.

1. Penalties imposed pursuant to this section shall not exceed $500.00 per violation.

2. Each day that a violation continues shall constitute a separate violation of this chapter for purposes of calculation of penalties.

3. The following procedure shall apply in assessing penalties for violations of customer service standards that are measured on a quarterly basis:

a. If the operator does not meet the prescribed standard (for example, the 90% standard for telephone answering) in a given calendar quarter (a "noncompliant quarter"), it shall pay a penalty in the amount of twenty dollars ($20.00) for every day in the noncompliant quarter. In addition, the operator will thereafter be on notice and subject to penalties if it fails to meet the standard involved for subsequent monthly periods until it meets the standard for a quarter (a "compliant quarter").

b. At the end of the month following a noncompliant quarter (for example, April following a noncompliant first quarter), the operator shall report to the City the statistics pertaining to the standard for that month. If the operator fails to meet the standard for that month, the operator shall pay penalties in the amount specified in Subsection B.3.c of this section. The same report shall be made, and monthly measurement continued, for subsequent months until a compliant quarter occurs.

c. i. If the operator does not meet the prescribed standard in the month immediately following the initial noncompliant quarter (the "test month"), then its monthly penalty shall be $100.00 for every day in the test month; $200.00 for every day in the second noncompliant month; and $500.00 for every day in any subsequent noncompliant months.

ii. If the operator meets the prescribed standard in the test month, then its monthly penalty shall be $100.00 for every day in the first subsequent noncompliant month, and $300.00 for any subsequent noncompliant months to a compliant quarter.

d. After a compliant quarter the operator shall return to quarterly measurement and penalty determination, until another noncompliant quarter occurs, in which event the procedures and penalties described in Subsections B.3.b and c of this section shall apply.

e. Penalties of twenty dollars per day for a noncompliant quarter pursuant to Subsection B.3.a of this section shall not be assessed if the operator (i) meets the

prescribed standard during the subsequent test month and (ii) meets the prescribed standard in the quarter (as a whole) following the noncompliant quarter.

f. Thus, for example, if the first quarter is noncompliant, and the operator fails the relevant standard for April, the operator pays $1,800.00 for the first quarter (assuming it is not a leap year); pays $3,000.00 (30 days × $100.00) for April; and continues to report the relevant monthly statistics for May and June. If May is also noncompliant, the operator pays $6,000.00 (30 days × $200.00). Assume that June is compliant, and that the second quarter as a whole is also compliant. In that case, the operator would be evaluated on quarterly statistics for the third quarter. Assume that the third quarter was again noncompliant, but the operator succeeded in returning to compliance in October. The operator would not be required to pay a penalty for the third quarter (because it met the prescribed standard in October), but would continue to be evaluated monthly for November and December. In these months, again due to the operator's success in meeting the standard in October, the lower set of penalties specified in Subsection B.3.c,i of this section would apply: thus, noncompliance in November would result in a penalty of $3,000.00 (30 days × the lower rate of $100.00).

C. If a grantee is fined for a violation of this chapter, such grantee shall not be subject to liquidated damages pursuant to its franchise agreement for the same violation or act.

D. In order to enforce the remedies specified in this section, the franchise agency shall notify the City Counselor that an alleged violation of this chapter has occurred. Either upon such notice by the franchise agency, or on his or her own motion if the City Counselor in his or her discretion determines that there is a reasonable basis for the belief that a violation has occurred, the City Counselor may prosecute such violation pursuant to Missouri law.

E. Provided that fines imposed shall not exceed $500.00 per violation, the City Counselor may authorize alternative enforcement proceedings by the agency in lieu of the procedures set forth above. Such authorization shall be in writing, with notice to the grantee involved. Such alternative enforcement procedures shall be as follows:

1. Hearing procedures.

a. The regulatory section of the franchise agency shall issue a written notice of complaint/violation to an operator, specifying the nature and time of the alleged violation and proposing a penalty consistent with this section.

2. In response to a notice issued under Subsection E.1 of this section, an operator may agree to pay the proposed penalty, or may contest such notice. An operator may contest such notice by notifying the Communications Commissioner in writing within ten (10) business days after the operator's receipt of the notice issued by the regulatory section. Such an operator's reply shall include the basis for the operator's objection and any supporting documents the operator wishes to have considered in reviewing the notice of violation.

3. Within ten (10) business days after receipt of an operator's reply, the Communications Commissioner shall notify such operator and the regulatory section of a date, time and place of a hearing on the matter, which date shall be not less than fifteen (15) and not more than forty-five (45) days from the date of such notification by the Communications Commissioner.

4. The hearing shall be conducted as required by the Missouri Administrative Procedure Act, RSMo Ch. 536, as amended (the "APA"), for a contested case.

5. Not less than thirty (30) days following the conclusion of the hearing, the Communications Commissioner shall issue a written decision consistent with the APA, finding that the complaint/violation as stated in the notice is proven and imposing an appropriate administrative penalty, or modifying or dismissing the regulatory section's notice of violation. If the Communications Commissioner does not issue such a decision within such thirty-day period, the regulatory section's notice of violation shall be deemed dismissed, provided that the Communications Commissioner may extend such period up to a total of 45 days.

6. Decisions of the Communications Commissioner pursuant to Subsection E.5 of this section are appealable pursuant to the APA.

F. Hearing Officers.

1. In lieu of conducting a hearing himself, the Communications Commissioner may appoint a hearing officer to conduct any hearing pursuant to this section and submit recommended findings of fact and conclusions of law to the Commissioner. If so, the Commissioner's notice of hearing shall so advise the operator and the regulatory section within ten (10) business days of receipt of operator's reply, and shall advise the parties of the name and address of the hearing officer. Hearing officers may, but need not, be

attorneys, and may be appointed from any list of duly selected hearing officers maintained by any City department or agency.

2. Regulations. The franchise agency may issue regulations concerning enforcement procedures which are consistent with this chapter and applicable law. An operator shall be provided written notice of and opportunity to comment on any such regulations prior to their applicability as to that operator. (1994 C., § 8.29A.210; Ord. No. 65430, § 21, 2001.)

8.29A.220 Severability.

The provisions of this chapter are severable. In the event any provision hereof is determined to be invalid, the remaining provisions shall remain in full force and effect. (1994 C., § 8.29A.220; Ord. No. 65430, § 22, 2001.)

8.29A.230 Waiver of requirements.

The franchise agency may, with the prior approval of the City Counselor's Office, waive any material requirement under this chapter for good cause shown as determined by the City Counselor's Office and the agency. Any such waiver must be in writing and explain in detail the reason for the waiver, and the agency shall promptly report to the Board of Aldermen regarding any such waiver. (1994 C., § 8.29A.230; Ord. No. 65430, § 23, 2001.)

8.29A.240 Exhibit A.

Subscriber Remedies for Missed Appointments

1. For a missed service appointment:	
Each occurrence	$20.00 credit to a subscriber's account
2. For a missed installation, upgrade or downgrade appointment:	
First occurrence	Installation fee waived (or $20.00 credit if the installation was to have been free)
Subsequent occurrence	$20.00 credit for each subscriber's account
3. For new installations, if subscriber subsequently requests cancellation of the order due to failure to complete:	Prompt cash refunds to the payer for the full amount of pre-paid charges, plus a transferable coupon good in the grantee's system in the City for one free installation and $20.00 in free service, without expiration

(1994 C., § 8.29A.240; Ord. No. 65430 Exh. A, 2001.)

Chapter 8.29B

CABLE TELEVISION FRANCHISE RENEWAL—ST. LOUIS TELE-COMMUNICATIONS

Sections:

8.29B.010 Definitions and rules of construction.
8.29B.020 Grant of franchise; effective date.
8.29B.030 Term of franchise.
8.29B.040 Franchise conditions and limitations.
8.29B.050 Construction schedule and conditions.
8.29B.060 System performance.
8.29B.070 Facilities and equipment—Access requirements.
8.29B.080 Interconnection.
8.29B.090 Support of minorities and women.
8.29B.100 Payments to the City.
8.29B.110 Performance bond, letter of credit, and insurance.
8.29B.120 Revocation and default provisions and remedies.
8.29B.130 Reports and records.
8.29B.140 City's right of intervention.
8.29B.150 Amendment of franchise.
8.29B.160 Acceptance.
8.29B.170 Grantee may promulgate rules.
8.29B.180 Notices.
8.29B.190 Construction of provisions generally.
8.29B.200 Severability.
8.29B.210 Obscenity provisions.
8.29B.220 Conflict of provisions.
8.29B.230 Force majeure.
8.29B.240 Integration.

8.29B.010 Definitions and rules of construction.

A. *Definitions.* For the purposes of the agreement codified in this chapter, unless otherwise specified, the following terms, phrases, words, and their derivations have the meaning given herein, unless the context clearly indicates that another meaning is intended:

1. "Cable ordinance" or "ordinance" means Ordinance 65431 (Board Bill 77), as it may be amended from time to time.

2. "Cable system" or "system" means any cable system (as that term is used in the cable ordinance)

which grantee is authorized to construct, operate and maintain pursuant to the agreement codified in this chapter.

3. "City" means the City of St. Louis, a municipal corporation of the State of Missouri, organized and existing under its Charter and the constitution and laws of the State of Missouri.

4. "Downtown area" means the portion of the Franchise Area specified in the description attached to the ordinance codified in this chapter as Exhibit 1.

5. "Franchise" means the franchise (as that term is used in the cable ordinance) granted to the grantee subject to the terms and conditions of the agreement codified in this chapter and applicable law.

6. "Franchise area" means the entire area within the jurisdictional boundaries of the City of St. Louis.

7. "Franchise agreement" or "agreement" means the agreement codified in this chapter and any amendments, exhibits or appendices hereto.

8. "Franchise effective date" means the date on which the agreement is lawfully executed by both parties as provided under Section 8.29B.020 of the agreement codified in this chapter and in the manner required by Section 8.29.080 of the cable ordinance.

9. "Grantee" means St. Louis Tele-Communications, Inc., a Missouri corporation, currently providing services as AT&T Broadband.

10. "Gross revenue" means all revenues derived directly or indirectly by the grantee, its affiliates, subsidiaries, parents, and any entity in which the grantee has a financial interest, from or in connection with the operation of its cable system to provide cable services. This definition shall be construed so as to include all gross revenues to the maximum extent permitted by federal law, except to the extent specifically excluded in Subsection A.10.b of this section.

a. Gross revenues include, by way of illustration and not limitation, monthly fees charged subscribers for any basic, optional, premium, per-channel, per-program service, or cable programming service; revenues from internet access over the cable system (to the extent such services are lawfully considered cable services under applicable law); installation, disconnection, reconnection, and change-in-service fees; leased channel fees; late fees and administrative fees; fees, payments, or other consideration received from programmers for carriage of programming on the cable system; revenues from rentals or sales of converters or other equipment; studio rental, production equipment, and personnel fees; advertising revenues; barter; revenues from program guides; and revenues from home shopping and bank-at-home channels.

b. Gross revenues shall not include (a) any taxes on services furnished by the grantee herein imposed directly upon any subscriber or user by the City, the State of Missouri or the governmental unit and collected by such grantee on behalf of said governmental unit. A franchise fee is not such a tax; (b) any bad debt; provided, however, that all or any part of any such actual bad debt that is written off but subsequently collected shall be included in gross revenues in the period collected.

c. Any amounts includable as gross revenues that are received by an affiliate, subsidiary, parent, or any entity in which the grantee has a financial interest shall not be counted as gross revenues to the extent that such amounts are also received directly by the grantee, to ensure that no such revenue is counted twice.

11. "Node" means a facility on a cable system where transmission by light over fiber optic cable is converted to transmission by electricity over coaxial cable, or vice-versa.

12. "Prior franchises" means the franchises granted pursuant to Ordinance No. 59197, which were both held by the grantee immediately prior to the franchise effective date.

13. "System upgrade" means the improvement and enhancement in the technology and service capabilities made by the grantee to its cable system described in Section 8.29B.070.B herein.

14. "Transfer" shall mean any transaction in which: (a) any direct ownership or other right, title, or interest of more than ten percent (10%) in the grantee or its cable system is transferred, sold, assigned, leased, or sublet; or (b) there is any change in control of the grantee; or (c) the rights and/or obligations held by the grantee under the franchise are transferred, directly or indirectly, to another person; or (d) any change or substitution occurs in the managing general partners of the grantee, where applicable.

a. "Control" for purposes of this section means the legal or practical ability to exert actual working control over the affairs of the grantee either directly or indirectly, whether by contractual agreement, majority ownership interest, any lesser ownership interest, a change in the entity with management responsibility over the cable system, or in any other manner.

b. A rebuttable presumption that a transfer of control has occurred shall arise upon the acquisition or accumulation of twenty percent (20%) or more of the ownership of the grantee indirectly, through a change in ownership of its owners, by any person or group of persons acting in concert, none of whom already own or control fifty percent (50%) or more of the ownership of the grantee, singularly or collectively. For purposes of this section, however, an acquisition of publicly traded stock in a publicly traded corporation shall not result in such a rebuttable presumption even if it reaches or exceeds the twenty percent (20%) level of ownership of the grantee.

c. The grantee is responsible for ensuring that the intent of Section 8.29.060 of the cable ordinance is carried out. If for any reason an event occurs that would require the City's approval under that section, whether or not such event is directly or indirectly within the grantee's control, such event shall constitute a "transfer" for purposes of the agreement codified in this chapter and any applicable law.

d. Notwithstanding the foregoing, "transfer" does not include:

i. Disposition or replacement of worn out or obsolete equipment, property or facilities in the normal course of operating the cable system, including the renewal or extension of equipment or property leases and contracts; or

ii. Acquisition, transfer, sale or other disposition of leases, licenses, easements, and other interests in real property in the normal course of operating the cable system and not involving the relinquishment of any right or power affecting the grantee's ability to provide services in whole or in part; or

iii. Restructuring of ownership interests among entities ultimately wholly owned by the ultimate owners of the grantee, provided that the grantee provides signed written notice of such restructuring at least thirty (30) days in advance which (i) demonstrates that the conditions of this exception have been satisfied and (ii) warrants and represents that such restructuring will not have a material adverse effect on system rates, services, financial resources, management, or operations.

B. *Rules of Construction.* Unless the context clearly indicates to the contrary, the following rules apply to the construction of the agreement codified in this chapter:

1. Except as otherwise provided herein, the definitions and word usage set forth in the cable ordinance and the customer service ordinance adopted concurrently with the agreement codified in this chapter are incorporated herein and shall apply in the agreement codified in this chapter. Unless otherwise expressly stated, words not defined herein or in the ordinance shall be given the meaning set forth in Title 47 of the United States Code, as amended, or if not defined therein, Chapter 47 of the Code of Federal Regulations, or, if not defined therein, their common and ordinary meaning.

2. Words importing the singular number include the plural number and vice-versa.

3. Words in the present tense include the future tense and vice-versa.

4. The masculine gender includes the feminine gender and vice-versa.

5. All references to particular sections are references to sections of the agreement codified in this chapter.

6. The headings herein are solely for convenience of reference and do not constitute a part of the agreement codified in this chapter nor do they affect its meaning, construction or effect.

7. The word "shall" as used herein is always mandatory and not directory, and the word "may" as used herein is permissive.

8. "Applicable law" shall include, but is not limited to, applicable City ordinances, subject to the provisions of Section 8.29B.040.E and Section 8.29B.150.

9. The first letters of terms may be capitalized for convenience, but failure to capitalize a letter shall not affect the meaning. (1994 C., § 8.29B.010; Ord. No. 65433, § 1, 2001.)

8.29B.020 Grant of franchise; effective date.

Subject to the terms and conditions of this franchise agreement, the cable ordinance, and other applicable law, a franchise is granted to grantee for the construction, operation and maintenance of a cable system in the public rights-of-way within the franchise area, for the purpose of providing cable service. The franchise does not take the place of any other franchise, license, or permit which the City may lawfully require of grantee. Neither the franchise nor the franchise agreement grant any authority for the grantee to use the public rights-of-way for any purposes other than provision of cable service, except to the extent the agreement codified in this chapter may expressly and specifically provide that the grantee may provide other

services. Nothing herein shall prevent the grantee from using its cable system to provide non-cable services, provided that any and all authorizations lawfully necessary to use the City's public rights-of-way to provide such services under applicable law have been obtained. No privilege or power of eminent domain is bestowed by the franchise or the agreement codified in this chapter. This franchise will not take effect unless and until:

A. The grantee executes and files its acceptance of the franchise in the time and the manner prescribed in Section 8.29B.160 of the agreement codified in this chapter; and

B. The grantee meets each and every condition prescribed by Section 8.29B.160, in the time prescribed by that section. (1994 C., § 8.29B.020; Ord. No. 65433, § 2, 2001.)

8.29B.030 Term of franchise.

The franchise is for a term of 15 years, beginning on the franchise effective date and subject to renewal pursuant to applicable law. (1994 C., § 8.29B.030; Ord. No. 65433, § 3, 2001.)

8.29B.040 Franchise conditions and limitations.

A. The franchise is subject to forfeiture or revocation as provided herein and in the cable ordinance.

B. The grantee is subject to other remedies and sanctions as provided herein.

C. The franchise is non-exclusive, as required by Article XIX § 1 of the City's Charter and other applicable law. The City shall comply with the provisions of Section 8.29.110.E of the cable ordinance regarding competitive franchises.

D. The grantee shall comply with Ordinance 65430 (BB 76) and Ordinance 65431 (BB 77), each as adopted on June 22, 2001 and February 8, 2002, respectively, and all other applicable law, subject to Section 8.29B.040.E and Section 8.29B.150 hereof.

E. Grantee, by its acceptance of the franchise, agrees and acknowledges that pursuant to the agreement codified in this chapter and the cable ordinance, it will at all times during the life of its franchise be subject to the lawful exercise of the City's police power, authority lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee, or other lawful authority, whether exercised by ordinance or otherwise. Nothing contained in this franchise shall be deemed to prohibit in any way the right of the City lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee.

F. Grantee agrees that all privileges prescribed by the franchise are subordinate to any prior lawful occupancy of the public streets. The City reserves the right reasonably to designate where grantee's facilities are to be placed within the public ways.

G. Nothing in the agreement codified in this chapter in any way impairs or waives any right or power of the City to acquire the property of the grantee by purchase at a price reflective of its fair market value as an ongoing concern (provided that in no event is the franchise itself to enter as an element into such compensation) or such other price as may be required pursuant to applicable law or ordinances, or through the exercise of the power of eminent domain pursuant to Missouri law.

H. As long as internet access provided over the cable system is deemed to be "cable service" under applicable law, the grantee shall comply with all applicable requirements of the Cable Communications Policy Act of 1984, as amended, 47 U.S.C. § 521 ff., regarding such service. (1994 C., § 8.29B.040; Ord. No. 65433, § 4, 2001.)

Editor's Note:

The ordinances, and their respective dates, indicated in subsection (D) were inserted by the editor in the June 2002 Supplement.

Cases:

Cable television franchise forfeited for nonuser. *State ex rel. Peach v. Melhar*, 650 S.W.2d 633 (Mo.App.E.D. 1983).

8.29B.050 Construction schedule and conditions.

As a condition to the right to exercise its franchise and its rights thereunder, the grantee covenants as follows:

A. The grantee shall extend the system upgrade throughout the franchise area as rapidly as practicable, but, in any event, shall meet the following upgrade schedule.

1. Within 34 months after the franchise effective date, the grantee shall complete the system upgrade for all parts of the City except for the downtown area, and shall complete all the construction required by Section 8.29B.070.D. The grantee shall begin construction of the system upgrade within nine months after the franchise effective date.

2. Within 46 months after the franchise effective date, the grantee shall extend cable service to the downtown area, except that service shall be activated to certain specified areas earlier as specified in Subsection A.3 of this section.

3. Notwithstanding the time period specified in Subsection A.2 of this section, the grantee shall activate cable service to the Washington Avenue and Cupples Station areas of the City at the locations specified in Exhibit 2, which is codified in this chapter, hereto within twelve months after the franchise effective date.

4. Within twelve months after the franchise effective date, the grantee will activate a two-way fiber connection from City Hall, 1200 Market Street, to 4971 Oakland, so that the City can cablecast live meetings of the Board of Aldermen on a government access channel.

B. The grantee shall submit a construction plan which consists of maps of the entire franchise area and clearly delineates the sequence and schedule of the system upgrade to the agency six (6) months after the franchise effective date. The grantee shall file thereafter a map and progress report with the agency at the close of each calendar quarter until the system upgrade is complete, and subsequently at the close of each calendar year, showing the exact areas of the City being served by the cable system and the location and identification of major component parts of the cable system.

C. The grantee shall promptly notify the franchise agency of any delays known or anticipated in the system upgrade. Such notice shall be in writing and shall explain in detail the exact conditions responsible for the delay, the circumstances beyond grantee's control that prevent compliance, and the specific remedies and methods the grantee has undertaken to correct the conditions causing the delay. Failure on the part of the grantee to meet the deadlines set forth in Subsection A of this section, shall be grounds for termination of its franchise pursuant to the terms of the cable ordinance and the agreement codified in this chapter; provided, however, that the Board of Aldermen may extend the time for the commencement and completion of construction and installation and service to subscribers for additional periods in the event the grantee, acting in good faith, experiences delays by reasons of circumstances beyond its control.

D. Following the commencement of the system upgrade, every three months until the construction is completed, the grantee shall meet with the franchise agency to provide an update on the progress of the system upgrade and to integrate the grantee's work as far as practicable with the City's development process and street work, unless the franchise agency waives such meeting. Upon request, the grantee shall provide detailed written reports to the franchise agency on the grantee's progress in construction.

E. To ensure that subscriber service improves prior to the system upgrade, the grantee shall implement the preventive maintenance and remediation plan described in Exhibit 3, which is codified in this chapter. (1994 C., § 8.29B.050; Ord. No. 65433, § 5, 2001.)

8.29B.060 System performance.

As a condition to its right to exercise its franchise and its rights thereunder, the grantee covenants as follows:

A. The grantee will design, install and operate its cable television system so that the cable system is at all times:

1. Capable of continuous twenty-four (24) hour daily operation;

2. Capable of operating over an outdoor temperature range of -20 degrees F to 120 degrees F without catastrophic failure or irreversible performance changes over variation in supply voltage from 105 to 130 volts AC;

3. Capable of meeting all specifications as set forth herein over an outdoor temperature range of 0 degrees F to 100 degrees F over variations in supply voltages from 105 to 130 volts AC;

4. Operated in such a manner as to avoid causing unlawful interference with reception of off-the-air signals by non-subscribers;

5. In full compliance with the technical standards of the Federal Communications Commission.

B. Performance Monitoring.

1. Test procedures used in verification of the performance criteria set forth herein shall comply with all applicable Federal Communications Commission ("FCC") rules and regulations.

2. The results of such tests shall be filed with the franchise agency within thirty days after completion of each test. Each such filing shall specify the procedures used and shall explain in detail any instances of noncompliance, their actual or likely scope or causes, and grantee's recommendation of the best measures to correct the noncompliance.

3. If complaints received or other evidence indicate an unresolved controversy or significant noncompliance with any applicable technical standards, the agency may require additional tests, full or partial repeat tests, or tests involving a specific subscriber's ter-

minal. Such tests will be limited to the particular matter in controversy. The agency will endeavor to arrange its requests for special tests so as to minimize hardship or inconvenience to grantee or to its subscribers.

4. The grantee shall notify the agency in advance of tests for compliance with FCC standards. The agency may have representatives present to observe such tests.

5. The results of annual performance tests in accordance with FCC rules and regulations shall be retained by the grantee for at least five (5) years and shall be available for inspection by the franchise agency during business hours at grantee offices in the City upon twenty-four hours' notice. Copies of such test results shall be promptly provided upon the agency's request.

6. Grantee shall conduct monthly tests of the emergency alert system, in conjunction with the City department designated for such testing.

7. Grantee and the City shall conduct system performance tests pursuant to Exhibit 4, which is codified in this chapter. (1994 C., § 8.29B.060; Ord. No. 65433, § 6, 2001.)

8.29B.070 Facilities and equipment—Access requirements.

As a condition to its right to exercise its franchise and its rights thereunder, the grantee covenants as follows:

A. The grantee is authorized and required to operate its existing cable system, and to provide service substantially equivalent to its existing service, within the City as of the franchise effective date, until such time as the system upgrade is carried out, as provided herein. Such existing cable system that shall have a minimum capacity of fifty-four (54) channels.

B. System Upgrade.

1. The grantee shall upgrade its cable system pursuant to the system upgrade requirements in this Subsection B of this section.

2. The upgraded cable system shall have a minimum bandwidth of 750 MHz on all active and passive components, and be capable of carrying at least 138 video programming services.

3. The upgraded cable system shall utilize hybrid fiber-coaxial ("HFC") architecture that meets the following criteria upon completion of the system upgrade. Further deployment of system technology over the life of the franchise shall be at the grantee's discretion, provided that the resulting capacity, signal quality, and reliability of the cable system shall equal or exceed those of the cable system as described here.

a. At no place in the cable system shall more than 1,500 residences, businesses and other structures be served by any single fiber node. The average node size in the City shall not exceed 1,200.

b. Each node shall be designed and constructed to provide for segmentation of homes passed without requiring substantial additional construction.

c. There will be no more than eight amplifiers within any amplifier cascade in the cable system. The average number of amplifiers in any amplifier cascade in the City shall not exceed six.

4. Within six months after completion of the system upgrade, the grantee shall provide a continuous automated performance test and measurement system to ensure on an ongoing basis the technical and operational integrity of the cable system.

5. The grantee shall use reasonable efforts to design and build the upgraded cable system so that channel capacity may be readily expanded and additional programming delivered to subscribers without compromising signal or service quality.

6. The grantee shall use reasonable efforts to design and build the upgraded cable system so that further upgrades can be accomplished without substantially disturbing the public rights-of-way, through replacement of electronics.

7. The grantee shall take reasonable steps to avoid implementing a system design that would preclude accommodation of multiple internet service providers on any cable modem platform established by the grantee.

8. Grantee shall, throughout the franchise area and for the duration of the franchise, make available on the system continuous information regarding visual and audio programming. Receiving such information shall not require subscription to any service other than basic and cable programming service tiers.

C. Line Extension.

1. Within the City, the grantee must extend its cable system upon request to provide service to any person upon request, without charging such person more than the standard installation rates, unless the grantee demonstrates to the franchise agency's satisfaction that the cost for such extension would require the grantee to incur excessive costs, in which case the franchise agency may at its discretion grant a written waiver

permitting the grantee to recover from the persons who will receive service those amounts that exceed a reasonable cost.

2. For purposes of Subsection C.1 of this section, the length of a cable drop to a multiple dwelling unit shall be calculated to the point in the building where the risers begin and shall not include any part of the riser that must be traversed to reach an individual dwelling unit. It will be rebuttably presumed that any such drops are less than 125 feet in length.

3. Where new dwelling units are developed in the City, including, but not limited to, in-fill housing and high-rise dwelling units in loft districts, the grantee shall extend service to persons in those units within 60 days after service is requested, provided that the owner of the building has granted access.

4. The grantee shall make the same cable service available to businesses or "commercial" subscribers for their private use as to residential subscribers, on the same terms and conditions as apply to such residential subscribers.

D. Public, Educational, and Governmental Access.

1. Municipal and School Services. At no cost to the City or the school involved, the grantee shall provide activated cable services and install one service outlet to each building within the franchise area used for public libraries, City operations, or K-12 schools.

a. In order for such facilities to access PEG channel and other pertinent governmental or educational programming, grantee shall provide free of charge to all outlets in those facilities:

i. Basic and expanded basic service (or the subsequent equivalent thereto); and

ii. Any equipment necessary to receive such services, including converters to de-scramble the government municipal services (training) channel at City offices and facilities.

b. The grantee shall install the initial outlet at no charge in the building location specified. The grantee shall install additional outlets to such facilities upon request, and shall charge only its time and materials costs for installation of such additional outlets. Any outlets and wiring installed by the facility itself rather than the grantee must also meet FCC technical standards. Any outlets and wires also used for internal facility transmission of non-cable services may not cause disruption to the cable system and must be used only for lawful purposes. The grantee may decline service to outlets not meeting these standards.

c. With respect to any newly deployed eligible municipal and educational facilities not receiving service as of the franchise effective date, the agency will notify the grantee with pertinent installation information and addresses for facilities in which new installations need to be made. Whenever possible, the agency will also supply routing drawings, outlet locations, preferred installation schedules, and contact names. However, the agency's failure to provide such information does not abrogate the grantee's responsibility to meet the deadlines set herein, nor must an agency inspector be on site for an installation to occur.

i. Such new installations within an area currently served by the cable system shall be made within thirty (30) days of written notification by the agency, or later if the facility so designates.

ii. If the eligible facility is in an area not currently served by the cable system, internal wiring for requested outlet(s) shall generally be made concurrent with plant deployment so that service can be initiated promptly upon activation of plant. In no event shall activation of service be delayed beyond six months from the initial request or within thirty days of plant construction and activation, whichever is later.

The grantee may seek an agency temporary waiver of the deadline requirements of this Subsection D.1.c of this section due to technical or budgetary limitations on the part of the grantee or facility.

d. The grantee shall deliver all cable signals to each outlet at a signal strength sufficient to meet FCC technical standards, and provide or reinstall wiring adequate to deliver such signal strength at locations which have more than one outlet, and adequate drop or feeder cable to allow for installation and service at additional outlets. The grantee shall work with the agency during pre-construction periods to determine which sites need upgraded drops and develop a timeframe for deployment of the upgraded drops. Requisite signal strength for multiple outlet facilities shall generally be 15dBmV or better, measured at the demarcation point of the facility.

e. The grantee is not required by this section to provide free outlets, equipment or services to City-owned facilities leased to third parties for commercial

purposes in which the grantee would normally enter into commercial service contract with the facility occupant.

f. The grantee has established a voluntary initiative to provide cable internet service to all public libraries, K-12 public and state-accredited parochial and private schools which are passed by the cable system at no cost to the City or institutions. The grantee intends to provide each of these schools and libraries with one outlet of unlimited internet access, including the necessary modem, once the cable system is upgraded to support such services. Provision of such services shall not be deemed a requirement of this franchise for rate regulation purposes.

g. For purposes of Section 8.29B.090.D.1 a building used for City operations is a City-owned or leased building or facility which is regularly occupied by City employees in the performance of their duties, but in any event shall also include all public safety dispatch centers, police stations and fire stations regardless of the extent to which they are so occupied.

2. Access Channels. The grantee shall make available to all subscribers on the cable system access channels as follows:

a. *Public Access Channels.* At least one specially designated, noncommercial public access channel and one specially designated, noncommercial community access channel.

b. *Local Government Access Channels.* At least two specially designated channels available for local government use under the direction of the franchise agency. In addition, the three channels dedicated to two-way digital communication pursuant to the prior franchises shall be maintained in service pursuant to the requirements of the prior franchises until all applications using those channels have been moved to an institutional network.

c. *Elementary and Secondary Education Access Channel.* At least one specifically designated channel for use by local educational authorities at the elementary and secondary levels.

d. *University and College Access Channel.* At least one specially designated channel for use by the local (St. Louis or St. Louis County) universities and colleges, whether public or private institutions, or by an educational management entity or consortium generally representing these institutions.

e. *Digital Capacity.* If the grantee implements technology that allows any of the above access channels to be delivered using less than 6 MHz of bandwidth, then the grantee shall make available additional capacity for the same purposes as are applicable to such access channels pursuant to the agreement codified in this chapter, up to a maximum total of 6 MHz of bandwidth for each such access channel, in the event that the capacity otherwise available is fully utilized for PEG access purposes.

i. For purposes of this Subsection D.2.e of this section, a video channel (or portion of such channel used to transmit video programming) shall be deemed "fully utilized" if cablecasts of non-duplicated, locally-produced programming exceed seventy-five percent (75%) (for public access) or fifty percent (50%) (for educational and governmental access) of the total time between the hours of 9:00 a.m. and 12:00 midnight for at least thirty days in a period of forty-five consecutive days.

ii. Such additional capacity shall be provided by the grantee within ninety (90) days after a written request from the manager of such access channel specifying the intended uses of such capacity.

3. PEG Access and Remote Origination Sites. Signal input points and equipment shall be available at sites specified in Exhibit 5, which is attached to the ordinance codified in this chapter for live programming origination on access channels.

4. Digital Conversion. If the grantee makes changes to the cable system that require improvements to access facilities and equipment (such as conversion to an all-digital format), the grantee shall cover any necessary modification or replacement costs so that PEG facilities and equipment may be used as intended with respect to the PEG channels specified herein.

5. Public Access Channel Manager.

a. Public and community access channels shall initially be managed by Double Helix Corporation (the "access channel manager").

b. Public and community access facilities shall be open and scheduled by the access channel manager in a manner that ensures availability of equipment and facilities during day, evening, and weekend hours.

c. Training, workshops and internships in video production shall be offered to all City residents on a first-come, first-served basis, at minimal or no cost.

d. Fees and deposits for use of such facilities or equipment shall be reasonable.

e. If the City finds unsatisfactory the performance of an access channel manager, then the City

may, in its sole discretion, designate one or more non-profit, tax-exempt access channel manager(s) meeting the requirements of Subsection D.5.f of this section and reassign any facilities or equipment provided by the grantee to the new access channel manager(s).

f. An access channel manager shall have demonstrated experience in facilitating community programming.

6. Regulation of Public Access Channels. The City may, from time to time, by ordinance, regulate use of public access channels.

E. Emergency Alert System.

1. Grantee shall design and construct the system to provide for an interrupt of all video channels, and an audio override of all audio channels whereby a designee of the City may introduce an audio message on all of the system's channels simultaneously, during emergencies or disasters. An emergency power source to preserve this function shall also be provided by the grantee at the headend of its system. The emergency alert system shall comply with all applicable federal requirements.

2. The emergency alert system shall provide for activation from the office of the Mayor, police headquarters, fire headquarters, or the City Emergency Management Agency, via secure coded access. Methods and access codes for activating the emergency alert system shall be filed and kept current with the City Emergency Management Agency director, the Mayor, the Chief of Police, and the Chief of the Fire Department, and also for informational purposes with the franchise agency.

F. The City shall have the right, throughout the term of the franchise, to install and maintain free of charge upon the poles and conduits of the grantee any fixtures necessary for communications use by the City, on the conditions that (a) such fixtures do not interfere with the cable system operations of the grantee; and (b) the City will not use the grantee's equipment for commercial purposes or to compete with the cable system, or allow others to use such equipment for commercial purposes or to compete with the cable system without acceptable reasonable compensation to the grantee; and (c) to the extent permitted by law, the City shall indemnify the grantee from damages resulting from any such use. (1994 C., § 8.29B.070; Ord. No. 65433, § 7, 2001.)

8.29B.080 Interconnection.

A. The grantee will interconnect channels with the grantee's other systems in St. Louis County for the purpose of allowing the two-way sharing of PEG access programming upon the directive of the franchise agency. Interconnection of systems may be done by direct cable connection, microwave link, satellite, or other appropriate method that allows PEG access programming to be shared and transferred between City and county systems.

B. The grantee may be granted a reasonable extension of time to make the interconnection provided for in the preceding subsection, or the franchise agency may rescind any order to interconnect upon request by the grantee.

C. The grantee shall ensure the adequate signal quality of any interconnection. (1994 C., § 8.29B.080; Ord. No. 65433, § 8, 2001.)

8.29B.090 Support of minorities and women.

Recognizing the economic benefits it is deriving from its use of the public rights-of-way and the racial, ethnic and socio-economic diversity of the population of the City:

A. The grantee agrees that it shall, on an annual basis:

1. Award technical, professional services and construction contracts with a dollar value equal to at least 40% of the total dollar value of all such contracts to minority business enterprises (MBE) as hereinafter defined and 10% to women business enterprises (WBE) as hereinafter defined.

2. Purchase materials, supplies, and other goods or services of a dollar value equal to at least 30% of the total value of all such purchases from MBEs and 5% of all such purchases from WBEs.

For purposes of this section, enterprises shall be eligible for MBE or WBE status if (i) they appear on eligibility lists maintained by a City department, division, or office with responsibility for establishing such eligibility, or (ii) the enterprise demonstrates to grantee's and agency's satisfaction that the enterprise is an MBE or WBE for purposes of Mayor's Executive Order number 28 with respect to MBE and WBE participation in City contracts. The grantee agrees that expenditure categories under this section shall generally be determined as provided in Exhibit 6, which is attached to the agreement codified in this chapter, and may be modified by mutual agreement of grantee and the franchise agency during the term of the agreement codified in this chapter to address new expenditure categories or business situations of the grantee.

B. The grantee agrees that, on an annual basis, hiring practices for and composition of its employed work force shall be at least:

1. Technical and professional service employees: 40% minority groups, 10% women.

2. Construction employees: 45% minority groups, 5% women.

3. Management-level employees: 40% minority groups, 30% women.

C. Grantee agrees that any advertised job openings shall be posted with the Missouri Division of Employment Security, and advertised in publications aimed at minority and women audiences.

D. The City and grantee agree that to respond to industry and technology advances grantee's internal training will need to evolve and develop over the life of the franchise. The grantee's workforce shall receive significant annual training in entry-level and on-going job skills development leading to promotional opportunities for qualified members of its workforce, including minorities and women, as follows:

1. *Customer Service Representative Programs.* Shall take place no less than two times per year for all employees in the category, and encompass specific training in customer satisfaction standards, telephone relations, technical trouble-shooting over the phone, complaint resolution, sales techniques which meet consumer protection and privacy obligations, and proper marketing procedures.

2. *Management/Supervisor Programs.* Shall take place no less than two times per year and be structured as on-the-job training and cross-training which provides opportunities for job skill development. Such training courses shall include, but not be limited to: legal seminars, accounting and audit procedures, employee relations and supervisory practices, implementation of Equal Employment Opportunity (EEO) policies, customer relations, and safety practices.

3. *Technical Programs.* Will be conducted for both installation and repair personnel, and should include or be based on the course work developed by the National Cable Television Institute, including testing and certification of technical personnel. On-the-job training in the field will include quality control and standards for installation to meet local electrical codes.

The grantee's internal employee training specified in Subsections D.1 and 2 of this section shall generally be conducted in grantee's facilities in the City of St. Louis, currently 5240 Oakland Avenue.

The grantee agrees that its local origination video programming and other operations will provide opportunities for internships open to qualified students and others as appropriate.

E. To ensure compliance with this section, grantee shall contract with a non-governmental entity (hereinafter referred to as the "monitor") for assistance in establishing and implementing a plan for compliance with this section. Such contract shall provide for consultation between grantee and monitor regarding recruiting and hiring of employees, awarding of contracts, and independent verification of all quarterly reports submitted to the franchise agency by the grantee.

F. Within 60 days of the end of each quarter, the monitor, on behalf of the grantee, shall file quarterly reports documenting compliance with this section. The format, content and methodology of such reports shall be subject to agency approval. The quarterly reports shall be annotated to explain unusual conditions or circumstances reflected in the figures, and be accompanied by a verification statement of the monitor. Such reports shall address:

1. Information by category regarding contracts and purchases with MBEs and WBEs.

2. Upon request of the City, subject to appropriate measures as to confidentiality, total dollars expended in each category and total dollars expended with MBEs and WBEs.

3. Percentage of employees within the specified categories of Subsection B.1 through 3 of this section, indicating percentages by both gender and racial composition.

4. Training information, including:

a. Descriptive summary of the title and content of internal customer service representative and supervisor employee training programs during the previous quarter, also specifying the classifications of employees receiving such training, reasons why any employee in those classifications did not receive such training, and aggregate information as to gender and racial composition of training participants.

b. Descriptive summary of the title and content of internal or third-party courses of training for employees in the technical category during the previous quarter, also specifying the classifications of employees receiving such training, reasons why any employee in those classifications did not receive such training, and aggregate information as to gender and racial composition of training participants.

c. Descriptive summary of title and content of all training offered to management personnel and potential applicants for management promotions, also specifying criteria for selection of training participants, and including job titles and general classification of supervisory or management employees receiving such training, reasons why any management employee or applicant did not receive such training, and aggregate information as to gender and racial composition of such training participants.

5. Description of, and information on participation by gender and racial composition, for non-employee internships offered or funded by the grantee during the previous quarter, as applicable.

G. The grantee agrees that based upon such reports, the franchise agency shall make determinations of compliance for contract awards, employment and training efforts throughout the life of the franchise, and that grantee is obligated to address any written agency notice of under-compliance or noncompliance by filing a specific remedial plan to achieve full compliance within the next quarter in regards to contract awards, employment of minorities and women, and within the next two quarters in regards to training. Such remedial plans shall include written policies regarding hiring and training and submission of interim reports during the remedial period as appropriate to the situation, and shall comply with any agency requirements for report methodologies to verify compliance.

H. Copies of all reports and filings filed with the FCC in regard to FCC regulations relating to employment practices shall be submitted to the franchise agency on an annual basis. (1994 C., § 8.29B.090; Ord. No. 65433, § 10, 2001.)

8.29B.100 Payments to the City.

The grantee shall pay franchise fees to the City pursuant to Section 8.29.070 of the cable ordinance. (1994 C., § 8.29B.100; Ord. No. 65433, § 10, 2001.)

8.29B.110 Performance bond, letter of credit, and insurance.

A. With its acceptance of the franchise, the grantee shall file with the franchise agency an executed bond in a form and with a surety acceptable to the City as specified in the agreement codified in this chapter to indemnify the City against any loss or damage it may suffer in the event the grantee fails to comply with one or more of the provisions of its franchise, in the following amount: $1 million. Upon written application by the grantee, the franchise agency shall permit the amount of the bond to be reduced in an amount determined by the agency in writing in the agency's sole discretion to reflect the percentage of completion of the grantee's system upgrade. In no event shall the amount of the bond be reduced below $500,000.00. Said bond shall be obtained at the sole expense of the grantee and remain in effect for the full term of the franchise or any extension (as distinct from renewal) thereof plus an additional six months thereafter (unless a replacement bond covering that period is agreed to by the City). The grantee and its surety shall be jointly and severally liable under the terms of the bond for any damages or loss suffered by the City as a result of the grantee's failure to comply with one or more of the provisions of its franchise, including a reasonable allowance for the City's lawful attorneys' fees and costs, up to the full amount of the bond.

B. Neither the filing of a performance bond with the agency, nor any insurance coverage, nor the receipt of any damages recovered by the City thereunder, shall be construed to excuse faithful performance by the grantee or limit the liability of the grantee under the terms of its franchise for damages, either to the full amount of the bond or otherwise.

C. The grantee shall file and maintain with the franchise agency at all times during the term of the franchise an irrevocable direct pay letter of credit from a financial institution licensed to do business in Missouri in the amount of $50,000.00 to ensure the grantee's faithful performance of its obligations under the franchise. The form and content of the letter of credit shall be approved by the franchise agency and the Comptroller.

1. The letter of credit shall be released only upon expiration of the franchise or upon the replacement of the letter of credit prior to its expiration.

D. The following procedures shall apply to drawing on the performance bond and the letter of credit required under this section, either of which is referred to below as the "security fund."

1. If the grantee fails to make timely payment of any amount due under the agreement codified in this chapter or applicable law or ordinances, after reasonable notice by the City and a reasonable opportunity for the grantee to make the required payment and to be heard regarding any issues concerning such payment, the franchise agency may withdraw the amount thereof,

with interest and any penalties, from the security fund pursuant to the procedures specified in this subsection.

2. Within three (3) days of a withdrawal from the security fund, the franchise agency shall mail, by certified mail, return receipt requested, written notification of the amount, date, and purpose of such withdrawal to the grantee.

3. If at the time of a withdrawal from the security fund by the franchise agency, the amounts available are insufficient to provide the total payment towards which the withdrawal is directed, the balance of such payment shall continue as the obligation of the grantee to the City until it is paid.

4. No later than twenty (20) days after mailing of notification to the grantee by certified mail, return receipt requested, of a withdrawal under the security fund, the grantee shall restore the security fund to the total amount specified herein.

5. Upon termination of the franchise, the balance then remaining in the security fund shall be returned to the grantee within six months of such termination, provided that there is then no outstanding default on the part of the grantee.

6. At no time shall the City seek a withdrawal from both the performance bond and the letter of credit for recovery of the same obligation, unless withdrawal from both becomes necessary to meet the amount of such obligation.

E. The grantee will comply with all indemnity and insurance requirements in the cable ordinance. (1994 C., § 8.29B.110; Ord. No. 65433, § 11, 2001.)

8.29B.120 Revocation and default provisions and remedies.

A. In addition to all other rights and powers reserved by the City, the City reserves the right to terminate and cancel a grantee's franchise and all rights and privileges of the grantee thereunder pursuant to the termination provisions of the cable ordinance.

B. Upon violation of the agreement codified in this chapter or applicable law or ordinances by the grantee, the City may proceed to protect and enforce its rights by mandamus or other suit, action or proceeding at law or in equity, including an action for specific performance of any provision of the agreement codified in this chapter and suit for the appointment of a receiver. Such remedies shall be cumulative, except that the City may not obtain both actual and liquidated damages for the same violation.

C. The following events are hereby defined as and declared to be and shall constitute violations of the agreement codified in this chapter so as to trigger the City's enforcement processes and the grantee's due process rights ("violations"):

1. Failure by the grantee to make timely payment of any franchise fee payment as provided herein which is not remedied by making such payment, together with interest and penalties as provided herein, within ten days after a written notice from the City to the grantee identifying such failure;

2. Failure by the grantee to provide, file or maintain, as and when required by the agreement codified in this chapter, any bond, policy of insurance, certificate of insurance or letter of credit, which is not remedied within five business days after a written notice from the City to the grantee identifying such failure;

3. Failure by the grantee to comply with any other agreement, obligation, duty, covenant or provision of the agreement codified in this chapter; provided that, if such failure is curable, the City shall notify the grantee of the failure in a written notice, and if such failure shall continue beyond a reasonable cure period as stated in such notice, the failure shall be a violation; provided that, if such curable failure is such that it cannot be cured within such period, it shall not constitute a violation provided (i) that the grantee has commenced such cure within such period, and (ii) the grantee diligently prosecutes such cure to completion;

4. Failure by the grantee to comply with any agreement, obligation, duty, covenant or provision of the agreement codified in this chapter, which failure is part of a pattern of repeated failure by the grantee after written notice to comply with such agreement, obligation, duty, covenant or provision.

D. Grantee acknowledges that a violation of the agreement codified in this chapter is also a violation of the cable ordinance.

E. Because the grantee's failure to comply with provisions of the franchise and this franchise agreement will result in injury to the City, and because it will be difficult with respect to certain provisions to estimate the extent of such injury, the City and the grantee agree to the following liquidated damages for the following violations of the franchise and of the agreement codified in this chapter, which represent both parties' best estimate of the damages resulting from the specified violation. The parties agree that the liquidated

damage amounts are in calendar 2001 dollars and shall be increased each year by the increase in the U.S. City Average of the Consumer Price Index.

1. For failure to comply with the requirements hereunder with respect to the approval of franchise transfers: $1,000.00/day for each violation for each day the violation continues;

2. For failure to comply with requirements for the provision of public, educational, and governmental capacity on the cable system: $500.00/day for each violation for each day the violation continues;

3. For failure to complete the system upgrade by the deadlines set forth in the franchise agreement: $1,000.00/day for each violation for each day the violation continues.

F. To initiate the enforcement process for liquidated damages, the City shall pursue the same process described in the cable ordinance for imposition of fines, except that if it pursues relief in court, the City may pursue appropriate proceedings in any court of competent jurisdiction rather than in City Court.

G. If a grantee is fined for a violation of the cable ordinance, such grantee shall not be subject to liquidated damages pursuant to the agreement codified in this chapter for the same violation or act. If a grantee is subject to liquidated damages pursuant to the agreement codified in this chapter for a violation, it shall not be fined for a violation of the cable ordinance for the same violation or act.

H. No delay or omission by the City to exercise any right or power occurring upon any default or violation shall impair any such right or power or shall be construed to be a waiver of any such default or violation or acquiescence therein, and every such right and power may be exercised from time to time and as often as may be deemed expedient.

I. No waiver of any default or event of default hereunder by the City shall extend to or affect any subsequent default or event of default or impair any rights or remedies consequent thereon. (1994 C., § 8.29B.120; Ord. No. 65433, § 12, 2001.)

8.29B.130 Reports and records.

A. The franchise agency shall have the right to inspect and, subject to Subsection B of this section, copy at any time during normal business hours at the City Cable System office or at such location as the franchise agency may reasonably designate, all records that the franchise agency deems reasonably appropriate in order to monitor compliance with the terms of the cable ordinance, the agreement codified in this chapter, or applicable law. This includes not only the records of the grantee, but any records the franchise agency reasonably deems relevant but which may be held by an affiliate, a cable operator of the cable system, or any contractor, subcontractor or any person holding any form of management contract for the cable system. The grantee is responsible for collecting the information and producing it at the location specified above, and by accepting its franchise it affirms that it can and will do so.

B. Access to inspect the grantee's records pursuant to Subsection A of this section shall not be denied by the grantee on the basis that said records contain confidential personnel or trade secret information. However, copying such records shall be permitted only to the extent the City can and agrees to lawfully protect such information from further disclosure, or to the extent the City is otherwise specifically authorized by applicable law to obtain copies of such records or information. All confidential personnel or trade secret information received by the franchise agency shall remain confidential and protected, but only to the extent permitted by RSMo Ch. 610, as amended, and other applicable state and federal law.

C. The grantee shall maintain its financial records so as to allow analysis and review of its system operations in the franchise area.

D. Copies of all petitions, applications, communications and reports submitted by the grantee to the Federal Communications Commission, Securities and Exchange Commission, or any other federal or state regulatory commission or agency having jurisdiction, in respect to any matters regarding cable system operations under the franchise, shall be provided to the agency no later than the filing date for such petitions, applications, communications and reports. Copies of all communications of any kind received by the grantee from such commissions or agencies regarding cable system operations under the franchise shall be filed with the agency as soon as reasonably possible upon receipt. Confidential personnel, trade secret, or otherwise nonpublic information in such communications may be redacted and treated consistent with the procedures set forth in Section 8.29.060.B.3.a and b of the cable ordinance.

E. Annual Report. Unless this requirement is waived in whole or in part by the franchise agency, no

later than 90 days after the end of its fiscal year, the grantee shall submit a written report to the franchise agency, in a form directed by the franchise agency, which shall include:

1. A summary of complaints, identifying both the number and nature of the complaints received and an explanation of their dispositions, as such records are kept by the grantee, together with copies of any written complaints received. Where complaints involve recurrent cable system problems, the nature of each problem and the corrective measures taken shall be identified;

2. A report showing the number of service calls received by type during each quarter, and the percentage of each type of service call as a percentage of the subscriber base;

3. A report showing the number of outages (as that term is defined in the customer service ordinance) for each quarter, and identifying separately each planned outage, the time it occurred, its duration, and the estimated area and number of subscribers affected; each unplanned outage, the time it occurred, its estimated duration and the estimated area and the number of subscribers affected; and the total hours of outages as a percentage of total hours of cable system operation;

4. A report showing the number of service interruptions (as that term is defined in the customer service ordinance) for each quarter, and identifying separately each service interruption, the time it occurred, its estimated duration and the estimated area and the number of subscribers affected; and the total hours of service interruptions as a percentage of total hours of cable system operation;

5. An annual financial report for the previous fiscal year, certified by the grantee's chief financial officer or an independent certified public accountant, including an income statement showing all subscriber revenue from each category of service, and all revenue from every source of non-subscriber revenue, derived from the operation of the cable system;

6. An organizational chart showing all corporations or partnerships with more than a five (5) percent ownership interest in the grantee, and the nature of that ownership interest (limited partner, general partner, preferred shareholder, etc.); and showing the same information for each corporation or partnership that holds such an interest in the corporations or partnerships so identified and so on until the ultimate corporate and partnership interests are identified;

7. A summary of the results of, and/or, at the grantee's option, copies of the system's technical tests and measurements performed during the past year;

8. A detailed copy of updated maps depicting the location of all cable plant, showing areas served and locations of all trunk lines and feeder lines in the City, and including changes in all such items for the period covered by the report;

9. A full schedule of all subscriber and other user rates, fees and charges;

10. The grantee's policies regarding subscriber privacy;

11. Such other information the franchise agency deems reasonably appropriate in order to monitor compliance with the terms of the cable ordinance, the agreement codified in this chapter, or applicable law as the franchise agency may direct.

F. Special Reports. Unless this requirement is waived in whole or in part by the franchise agency, the grantee shall deliver the following special reports to the franchise agency:

1. The grantee must submit a copy and full explanation of any notice of deficiency, forfeiture, or other document issued by any state or federal agency instituting any investigation or civil or criminal proceeding regarding the cable system, the grantee, or any affiliate of the grantee, to the extent the same may affect or bear on operations in the City. By way of illustration and not limitation, a notice that an affiliate that has a management contract for the cable system was charged with improper accounting practices regarding its management contracts would be deemed to affect or bear on operations in the City. This material shall be submitted in accordance with the deadlines specified in Subsection D of this section.

2. The grantee must submit a copy and brief explanation of any request for protection under bankruptcy laws, or any judgment related to a declaration of bankruptcy by the grantee or by any partnership or corporation that owns or controls the grantee directly or indirectly.

G. Additional Reports. Upon reasonable notice, the grantee shall prepare and furnish to the franchise agency such additional reports as the franchise agency deems reasonably appropriate in order to determine compliance with the terms of the cable ordinance, the agreement codified in this chapter, or applicable law.

H. In reports or records submitted to the City pursuant to this section, confidential personnel or trade

secret information may be redacted pursuant to Subsection B of this section to the extent permitted by applicable law.

I. Records Required.

1. The grantee shall at all times maintain:

a. Records of (i) all written complaints received for the life of the franchise, and (ii) all oral complaints received to the extent and in the form that such complaints are recorded by the grantee in the ordinary course of business, for five years. The term "complaints" as used herein refers to complaints about any aspect of the cable system or the grantee's operations, including, without limitation, complaints about employee courtesy. Complaints recorded may not be limited to complaints requiring an employee service call.

b. A full and complete set of plans, records, and "as built" (as that term is normally used in the cable industry) maps showing the location of cable system equipment installed or in use in the City, exclusive of subscriber service drops.

c. A comprehensive record of all utilization of contractors, subcontractors, vendors, and suppliers necessary to demonstrate compliance with grantee's obligations under Section 8.29B.090 of the agreement codified in this chapter.

d. A public file showing its timetable for completion of the system upgrade.

J. Voluminous Materials. If any books, records, maps or plans, or other requested documents are too voluminous, or for security reasons cannot be copied and moved, then the grantee may request that the inspection take place at some other location, provided that (1) the grantee must make necessary arrangements for copying documents selected by the franchise agency after review; and (2) the grantee must pay all travel and additional copying expenses incurred by the franchise agency in inspecting those documents or having those documents inspected by its designee.

K. Retention of Records—Relation to Privacy Rights. The grantee shall take all reasonable steps that may be required to ensure that it is able to provide the franchise agency all information which must be provided or may be requested under the cable ordinance, the agreement codified in this chapter, or other applicable law, including, without limitation, reasonable steps enabling subscribers to exercise their options regarding release of their information. Nothing in this section (8.29B.130) shall be read to require the grantee to violate 47 U.S.C. § 551 or other applicable privacy laws. Records shall be kept for at least five (5) years.

L. Waiver of Reporting Requirements. The franchise agency may, at its discretion, waive in writing any particular report or record-keeping requirement of this section. (1994 C., § 8.29B.130; Ord. No. 65433, § 13, 2001.)

8.29B.140 City's right of intervention.

The grantee agrees not to oppose intervention by the City in any suit or proceeding to which such grantee is a party relating to the franchise or to the City. (1994 C., § 8.29B.140; Ord. No. 65433, § 14, 2001.)

8.29B.150 Amendment of franchise.

Any amendment of the franchise agreement shall be subject to acceptance by the grantee, except that nothing herein shall be construed to limit the lawful exercise of the City's police power, authority lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee, or other lawful authority, whether exercised by ordinance or otherwise. Nothing herein, however, shall affect the City's or the grantee's rights with respect to renewal of the grantee's franchise. Nothing contained in this franchise shall be deemed to prohibit in any way the right of the City lawfully to levy any nondiscriminatory taxes on any activity conducted by grantee. (1994 C., § 8.29B.150; Ord. No. 65433, § 15, 2001.)

8.29B.160 Acceptance.

The grantee shall file an acceptance of its franchise pursuant to the cable ordinance. The grantee's franchise shall not be effective unless in its acceptance such grantee tenders to the agency in form acceptable to the City, all of the following:

1. An unconditional acceptance of its franchise;

2. All certificates of insurance required by the cable ordinance;

3. The bond as required by Section 8.29B.110.A hereof;

4. The letter of credit required by Section 8.29B.110.C hereof;

5. An executed copy of the settlement agreement authorized by Ordinance 65432 (BB 78) ("settlement agreement"). (1994 C., § 8.29B.160; Ord. No. 65433, § 16, 2001.)

Editor's Note:

The ordinance indicated in subsection (A)(5) was added by the editor in the June 2002 Supplement.

8.29B.170 Grantee may promulgate rules.

A. Grantee may promulgate such rules, regulations, terms and conditions of their businesses as are reasonably necessary to enable grantee to exercise its rights and perform its services under the agreement codified in this chapter and the applicable rules of the FCC, and to ensure uninterrupted service to all subscribers. Such rules and regulations are at all times subject to the provisions of the agreement codified in this chapter, the cable ordinance, the City Charter, and other applicable law. Such rules must comply with those provisions and shall not be deemed to have the force of law.

B. Grantee shall not, as to rates, charges, service, services, facilities, rules, regulations, or in any other respect, make or grant any undue preference or advantage to any person, nor subject any person to any prejudice or disadvantage. (1994 C., § 8.29B.170; Ord. No. 65433, § 17, 2001.)

8.29B.180 Notices.

Every direction, notice, or order to be served upon grantee shall be sent to:

General Manager
AT&T Broadband
5240 Oakland Avenue
St. Louis, MO 63110
With a copy to:
Franchise Director
AT&T Broadband
5240 Oakland Avenue
St. Louis, MO 63110

Every notice to be served upon the City shall be delivered or sent by certified mail with return receipt requested to:

President of the Board of Aldermen
City of St. Louis
Room 232, City Hall
Tucker and Market Streets
St. Louis, Missouri, 63103
and to:
Communications Commissioner
4971 Oakland
St. Louis, Mo. 63110
With copies to:
Chairman, Public Utilities Committee
Board of Aldermen
Room 230, City Hall
Tucker and Market Streets
St. Louis, Missouri, 63103
Office of the Register of the City of St. Louis
Room 118, City Hall
Tucker and Market Streets
St. Louis, Missouri, 63103
City Counselor
Room 314, City Hall
Tucker and Market Streets
St. Louis, Missouri, 63103

Either party may change its notice locations by prior notice in writing to the other party clearly indicating that the new address shall replace the old for notices pursuant to this section. The service of any such notice shall be deemed to have been at the time of receipt. (1994 C., § 8.29B.180; Ord. No. 65433, § 18, 2001.)

8.29B.190 Construction of provisions generally.

The agreement codified in this chapter shall be construed under the law of Missouri. (1994 C., § 8.29B.190; Ord. No. 65433, § 19, 2001.)

8.29B.200 Severability.

If any provision of the agreement codified in this chapter or the particular application thereof, is held invalid by any court, administrative agency, or other body with appropriate jurisdiction, the remaining provisions, and their application, shall not be affected thereby. If the terms of the agreement codified in this chapter are materially altered due to changes in governing law, then the parties shall negotiate in good faith to reconstitute the agreement codified in this chapter consistent with then-applicable law in a form that, to the maximum extent possible, is consistent with the original intent of grantee and the City and preserves the benefits bargained for by each party. (1994 C., § 8.29B.200; Ord. No. 65433, § 20, 2001.)

8.29B.210 Obscenity provisions.

Ordinance 58539 of the City (Sections 15.32.050 to 15.32.110, Rev. Code St. L. Anno. 1990) is hereby incorporated in the agreement codified in this chapter by express reference. (1994 C., § 8.29B.210; Ord. No. 65433, § 21, 2001.)

8.29B.220 Conflict of provisions.

If any provision of the agreement codified in this chapter expressly waives or contradicts any provision of the cable ordinance or the customer service ordinance as adopted concurrently with the agreement codified in this chapter, the provisions of the agreement

shall control. (1994 C., § 8.29B.220; Ord. No. 65433, § 22, 2001.)

8.29B.230 Force majeure.

The grantee shall not be held in default under, or in noncompliance with the provisions of the franchise, nor suffer any enforcement or penalty relating to noncompliance or default, where such noncompliance or alleged defaults were caused by extraordinary circumstances reasonably beyond the ability of the grantee to control. This provision includes, but is not limited to, work delays caused by waiting for utility providers to service or monitor their utility poles to which the grantee's cable system is attached; provided, however, that the grantee shall use its best efforts to prevent such work delays regarding utility poles. (1994 C., § 8.29B.230; Ord. No. 65433, § 23, 2001.)

8.29B.240 Integration.

This franchise agreement, together with its exhibits and with the settlement agreement entered into concurrently by the grantee and the City, constitutes the entire agreement between the grantee and the City.

CITY OF ST. LOUIS, MISSOURI,

a municipal corporation of Missouri

By: _____

Larry D. Stone

Communications Commissioner

By: _____

Darlene Green

Comptroller

APPROVED AS TO FORM:

_____

City Counselor

DATE FILED WITH REGISTER:

_____

City Register

ST. LOUIS TELE-COMMUNICATIONS, INC.

By: _____

[name & title of signatory]

Attest:

_____

[Corporate secretary or other appropriate person] (1994 C., § 8.29B.240; Ord. No. 65433, § 24, 2001.)

Chapter 8.29C

BROADBAND INTERNET ACCESS

Sections:

8.29C.010 Definitions.
8.29C.020 Access to content generally.
8.29C.030 Access to specific types of content.
8.29C.040 Support for internet protocols.
8.29C.050 Nondiscriminatory offering of internet services.
8.29C.060 Compliance with applicable law.
8.29C.070 Rules of construction.
8.29C.080 Modification by state or federal law.

8.29C.010 Definitions.

For the purposes of this chapter, the following terms, phrases, and words shall have the meaning given herein, unless the context clearly indicates that another meaning is intended. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

A. "Broadband" means having the capability of supporting, in both directions, a speed in excess of 200 kilobits per second in the last mile.

B. "Broadband internet user" means any residential customer who lawfully obtains broadband internet access through facilities in the City's public rights-of-way, or any nonresidential customer who lawfully obtains a type of broadband internet access that is generally offered by the internet access operator to residential customers.

C. "Content" means any information, including, without limitation, HTML information, audio, video, and other data.

D. "Internet access operator" means any entity owning facilities in the City's public rights-of-way whose facilities are used by any person to provide broadband internet access to persons in the City.

E. "Person" means any individual, firm, corporation, association, or other legally recognized entity. (1994 C., § 8.29C.010; Ord. No. 65434, § 1, 2001.)

8.29C.020 Access to content generally.

No internet access operator shall impair, limit, or condition any broadband internet user's ability to lawfully access any and all lawful content generally available to the public on the internet. (1994 C., § 8.29C.020; Ord. No. 65434, § 2, 2001.)

8.29C.030 Access to specific types of content.

A. No internet access operator shall impair, limit, or condition any broadband internet user's ability to lawfully access streaming video or audio.

B. Internet access operators shall permit broadband internet users to access the public internet without being required to view proprietary content provided by the internet access operator, or any affiliate.

C. No internet access operator shall require a broadband internet user to use any particular first screen or category of first screen upon accessing the internet. Rather, an internet access operator shall allow a broadband internet user to select any first screen of the user's choice, including a first screen of any internet service provider.

D. Internet access operators shall comply with all applicable law and regulation regarding accessibility to users with disabilities. Except as otherwise provided under applicable law or regulation, internet access operators shall not adopt a policy of prohibiting the use of specialized end-user interfaces (such as interfaces designed for use by the disabled) by broadband internet users, and shall take reasonable steps to ensure that their systems as designed and installed do not impede any use of such interfaces that are readily available as of the time of such design and installation.

E. Notwithstanding the foregoing subsections of this section, the following shall not constitute violations of this section:

1. Reasonable technical restrictions on the bandwidth or data transmission rate available to any broadband internet user needed to preserve service quality and speed of broadband internet access.

2. Offering of different internet access products to any and all broadband internet users at different prices in different packages or with different capabilities.

3. Requirement that broadband internet users pay their bills to the internet access operator as a condition of continued service.

4. Otherwise lawful arrangements between the internet access operator and internet service providers. (1994 C., § 8.29C.030; Ord. No. 65434, § 3, 2001.)

8.29C.040 Support for internet protocols.

An internet access operator shall maintain currency with generally accepted standards for interoperability with internet protocol applications. (1994 C., § 8.29C.040; Ord. No. 65434, § 4, 2001.)

8.29C.050 Nondiscriminatory offering of internet services.

Once residential broadband internet services are offered by an internet access operator in the City, such services shall be made available to residences generally on a nondiscriminatory basis throughout the City, without regard to race, gender, religion or economic status; provided, however, that an internet access operator may initially offer such service over a limited area as part of a gradual or phased construction or upgrade, so long as such initial offering is implemented on a nondiscriminatory basis without regard to race, gender, religion or economic status. (1994 C., § 8.29C.050; Ord. No. 65434, § 5, 2001.)

8.29C.060 Compliance with applicable law.

In addition to the obligations otherwise set forth in this chapter, an internet access operator shall comply with all lawful federal and state requirements with respect to access to the internet access operator's facilities for internet service providers. (1994 C., § 8.29C.060; Ord. No. 65434, § 6, 2001.)

8.29C.070 Rules of construction.

A. No provision of this chapter shall be construed or applied so as to prohibit, condition or restrict the use by any cable operator of any type of subscriber equipment or any transmission technology as those terms are used in 47 U.S.C. § 544(e).

B. No provision of this chapter shall be construed or applied so as to regulate the content provided to any broadband internet user.

C. No provision of this chapter shall be construed or applied so as to require any internet access operator to dedicate any specific bandwidth to internet access for the purpose of complying with this chapter.

D. No provision of this chapter shall be construed or applied so as to authorize rate-of-return regulation or the regulation of an internet access operator as a utility or common carrier to the extent such regulation would otherwise be prohibited by applicable law.

E. No provision of this chapter shall be construed or applied so as to regulate the rates an internet access operator may charge its broadband internet users for any service.

F. No provision of this chapter shall be construed or applied so as to prohibit otherwise lawful arrangements between the internet access operator and internet service providers.

G. No provision of this chapter shall be construed or applied to prevent an internet access operator from requiring a broadband internet user to use a particular screen or specific software or software tools, which may incorporate proprietary names or logos, in order to facilitate selection among multiple internet service providers. (1994 C., § 8.29C.070; Ord. No. 65434, § 7, 2001.)

8.29C.080 Modification by state or federal law.

A. If any provision of this chapter is held by a court of competent jurisdiction to be invalid or in conflict with any applicable City, state, or federal law, then this chapter shall be modified or suspended in such a manner as to implement the intent of this chapter to the fullest extent possible consistent with the requirements of any such law, rule or regulation. If this chapter cannot be modified or suspended in such a manner as to implement such intent, then this chapter shall be deemed null and void.

B. Notwithstanding the foregoing, the City recognizes that the subject matter of this chapter is currently the subject of proceedings before the Federal Communications Commission (FCC), and also recognizes that any lawful determinations by the FCC regarding the subject matter of this chapter that have preemptive effect pursuant to applicable law shall control. (1994 C., § 8.29C.080; Ord. No. 65434, § 8, 2001.)

Chapter 8.30

COMMISSION MERCHANTS AND MERCHANDISE BROKERS

City Counselor Ops.: 8067

Cases:

Plaintiff who sold several grocery stores was not engaged as a merchandise broker or commission merchant, and not bound to obtain the license required by ordinance for merchandise brokers and commission merchants. *Reichardt v. Hill,* 236 F. 819 (1916).

Sections:

8.30.010 Hay and grain commission merchant defined.

8.30.030 Publication of chapter.

8.30.010 Hay and grain commission merchant defined.

Every person having a place of business, who, for another person and for a commission or other compensation, buys, sells or receives on consignment for sale or negotiates between the owner and purchaser for the purchase or sale of any hay, wheat, corn, oats, barley, rye, flax, mill feed, soya beans, cotton seed meal or seeds for immediate or future delivery; and every person who, having a place of business, makes a purchase or sale of such commodities, and in the regular course of business makes a compensatory counter purchase or sale of an equal quantity of such commodities upon any established commodity exchange, is hereby declared to be a hay and grain commission merchant. (1948 C., Ch. 13, § 24; 1960 C., § 617.010; 1994 C., § 8.30.010.)

8.30.030 Publication of chapter.

It shall be the duty of the License Collector, when so directed by the Comptroller, to give notice by publication in the papers doing the City printing of any of the provisions or requirements of this chapter. (1948 C., Ch. 13, § 26; 1960 C., § 610.110; 1994 C., § 8.30.030.)

Chapter 8.32

DANCE HALLS

Sections:

8.32.010 Definitions.

8.32.020 License—Required.

8.32.045 Dance hall license application.

8.32.050 Taxi dance halls.

8.32.060 Posting licenses.

8.32.070 Expiration or transfer of license.

8.32.080 Permits.

8.32.090 Suspension or revocation of licenses or permits.

8.32.100 Conformance to building, health and fire regulations.

8.32.110 Revocation by neighborhood petition.

8.32.120 Powers and duties of police.

8.32.130 Investigations.

8.32.140 Disapproval or revocation of license.

8.32.150 Sanitation and lighting.

8.32.160 Closing for violations.

8.32.170 Closing.

8.32.180 Minors—Prohibited after eight p.m.—Exceptions.

8.32.190 Minors—Misrepresentation of age.

8.32.200 Minors—Misrepresentation as to parent or guardian.

8.32.210 Disorderly or indecent conduct—Presence of undesirable persons.

8.32.220 Applicability of chapter.

8.32.010 Definitions.

The following words when used in this chapter shall have the meaning ascribed to them in this section:

1. "Public dance hall" or "public ballroom" means any room, place or space in which a public dance or public ball shall be held.

2. "Public dance" or "public ball," shall be taken to mean any dance or ball to which admission can be had by payment of a fee or by the purchase, possession or presentation of a ticket or token, or in which a charge is made for caring for clothing or other property, or any other dance or ball to which the public generally may gain admission with or without payment of a fee. (1948 C., Ch. 17, § 1; 1960 C., § 715.010; 1994 C., § 8.32.010; Ord. No. 70813, § 5(8.32.010), 7-16-2018; Ord. No. 57494, § 1, 1978.)

City Counselor Ops.: 8725, 9274, 9762

8.32.020 License—Required.

It shall be unlawful to conduct any public dance hall or to hold any public dance or public ball or to hold classes in dancing or to give instructions in dancing for hire in any hall or academy within the limits of the City, unless the dance hall or academy in which the same may be held shall be duly licensed for such purposes. (1948 C., Ch. 17, § 2; 1960 C., § 715.020; 1994 C., § 8.32.020; Ord. No. 70813, § 5(8.32.020), 7-16-2018.)

City Counselor Ops.: 9762

McQuillin:

24.209 Dances, dance halls, dance schools

26.153 Dance places

8.32.045 Dance hall license application.

Notwithstanding the provisions of any other ordinance, no restaurant must pay for a dance hall license fee under Section One of Ordinance 49621. (1994 C., § 8.32.045; Ord. No. 70813, § 5(8.32.045), 7-16-2018; Ord. No. 61095, § 4, 1988.)

8.32.050 Taxi dance halls.

Nothing contained in this chapter shall be construed as authorizing the issuance of a license under any circumstances for the conduct of any public dance hall, commonly known as a "taxi dance hall," wherein there is kept or provided female dancing partners for male guests or customers and wherein the male guests or customers are required to pay, by the dance or otherwise, for the privilege of dancing with female dancing partners. (1948 C., Ch. 14, § 5; 1960 C., § 715.050; 1994 C., § 8.32.050; Ord. No. 70813, § 5(8.32.050), 7-16-2018.)

8.32.060 Posting licenses.

All licenses issued under the provisions of this chapter shall be posted in a conspicuous place within the hall or ballroom where dances or balls are given. (1948 C., Ch. 14, § 6; 1960 C., § 715.060; 1994 C., § 8.32.060; Ord. No. 70813, § 5(8.32.060), 7-16-2018.)

8.32.070 Expiration or transfer of license.

All licenses issued under the provisions of this chapter shall expire on the first day of June of each year and no license or permit shall be assigned or transferred. (1948 C., Ch. 17, § 7; 1960 C., § 715.070; 1994 C., § 8.32.070; Ord. No. 70813, § 5(8.32.070), 7-16-2018.)

8.32.080 Permits.

No person, association or organization, society, club or corporation shall hold a public dance or ball unless the same be held in a licensed hall without first obtaining a permit therefor from the Director of Public Safety. The application for a permit shall be made at least five days prior to the date of the proposed dance or ball, and the application shall be made upon a blank to be furnished by the Director of Public Safety. (1948 C., Ch. 17, § 8; 1960 C., § 715.080; 1994 C., § 8.32.080; Ord. No. 70813, § 5(8.32.080), 7-16-2018; Ord. No. 49621, § 1(8), 1959.)

8.32.090 Suspension or revocation of licenses or permits.

The license of any public dance hall or the permit for any public dance may be suspended or revoked by the Board of Public Service, for habitual disorderly conduct, immoral dancing or immoral conduct on the premises or for the violation of any of the rules, regulations, ordinances or laws governing or applying to public dance halls or public dances; provided, however, that no such license or permit shall be suspended or revoked except upon the hearing before the Board of

Public Service upon notice being mailed by the Secretary of the Board of Public Service five days before the date of the hearing, to the last known residence or business address of the holder of the license or permit. If any license for a public dance hall shall be revoked, at least six months shall elapse before another license shall be issued for dancing on the same premises or any other premises owned or conducted by the person, association, organization or corporation owning or conducting the public dance hall. No license shall be renewed until after reinspection of the premises and upon approval of the Director of Public Safety. (1948 C., Ch. 17, § 9; 1960 C., § 715.090; 1994 C., § 8.32.090; Ord. No. 70813, § 5(8.32.090), 7-16-2018; Ord. No. 49621, § 1(9), 1959.) City Counselor Ops.: 8299

8.32.100 Conformance to building, health and fire regulations.

No public dance hall shall be licensed or operated unless the hall complies with and conforms to all ordinances and health, building and fire regulations of the City, is properly ventilated and supplied with sufficient free drinking fountains, toilet conveniences and separate dressing rooms for men and women and is a safe and proper place for the purpose for which it is to be used. (1948 C., Ch. 17, § 10; 1960 C., § 715.100; 1994 C., § 8.32.100; Ord. No. 70813, § 5(8.32.100), 7-16-2018.)

8.32.110 Revocation by neighborhood petition.

If it is proposed to locate a public dance hall or public ballroom in the City, and a majority of the owners of property or occupants of structures who are registered voters located within four hundred feet of the building in which it is proposed to establish or maintain the public dance hall or ballroom, protest in writing against the issuance of the license, or the maintenance of the public dance hall or public ballroom, the Director of Public Safety, if he finds upon investigation that it would be for the best interests of the neighborhood, shall refuse his consent to the issuance of the license and he shall revoke the license where same has already been granted. (1948 C., Ch. 17, § 11; 1960 C., § 715.110; 1994 C., § 8.32.110; Ord. No. 70813, § 5(8.32.110), 7-16-2018; Ord. No. 49621, § 1(11), 1959.)

City Counselor Ops.: 8299

8.32.120 Powers and duties of police.

The members of the Police Department shall have access at all times to all public dance halls or ballrooms and officers or patrolmen of the Police Department shall be detailed to supervise public dance halls or ballrooms and investigate all complaints about public dance halls and public dances, and shall visit dance halls or ballrooms and report any and all violations of this chapter to the Chief of Police and the Director of Public Safety. (1948 C., Ch. 17, § 12; 1960 C., § 715.120; 1994 C., § 8.32.120; Ord. No. 70813, § 5(8.32.120), 7-16-2018; Ord. No. 49621, § 1(12) 1959.)

8.32.130 Investigations.

The Director of Public Safety shall examine all applications for public dance hall licenses and public dance permits, and shall investigate the place for which an application is made. He shall investigate the habits and moral character of the applicant, to determine whether the dance hall sought to be licensed or in which a public dance hall is to be held complies with the regulations, ordinances and laws applicable thereto, and whether the applicant is a proper person to conduct the public dance or public dance hall. In making the investigation the Director of Public Safety shall have the assistance of the Building Commissioner, Health Commissioner, the Chief of the Fire Department and the Chief of Police, who shall make such investigation as pertains to their respective departments, and report in writing to the Director of Public Safety the result of their investigation. If the application is approved by the Director of Public Safety he shall so notify the License Collector, who will thereupon issue the license. (1948 C., Ch. 17, § 13; 1960 C., § 715.130; 1994 C., § 8.32.130; Ord. No. 70813, § 5(8.32.130), 7-16-2018; Ord. No. 49621, § 1(13), 1959.)

City Counselor Ops.: 10453

8.32.140 Disapproval or revocation of license.

The Board of Public Service may disapprove the issuing of a license for a public dance hall or ballroom and may revoke any license for good and sufficient reasons submitted to it in writing. The board shall revoke any license already issued upon proof of the violating by any proprietor, lessee or manager of any public hall of any statute of the state, for violation of which imprisonment in the state penitentiary may be imposed, or for repeated violations of any criminal statute or ordinance. The Board of Public Service shall revoke any license for a public dance hall or ballroom already issued, upon proof of any violation of any ordinance regulating, controlling or in any way relating to the construction of the dance hall, or of any ordinance regulating, controlling or relating to health, san-

itation, re protection or the public peace, or for the violation of or failure to comply with any of the provisions of this chapter. (1948 C., Ch. 17, § 14; 1960 C., § 715.140; 1994 C., § 8.32.140; Ord. No. 70813, § 5(8.32.140), 7-16-2018.)

8.32.150 Sanitation and lighting.

All public dance halls or ballrooms shall at all times be kept in a clean, healthful and sanitary condition. All stairways, passageways and all rooms connected with the dance hall or ballroom shall be kept open and well-lighted. The dance hall shall be sufficiently lighted at all times so that it may be possible to see distinctly to any part thereof. (1948 C., Ch. 17, § 15; 1960 C., § 715.150; 1994 C., § 8.32.150; Ord. No. 70813, § 5(8.32.150), 7-16-2018.)

8.32.160 Closing for violations.

The Police Department shall have the power, and it shall be their duty to cause the place, hall or room where any dance or ball is held or given to be vacated and closed wherever any provision of any regulation, ordinance or law with regard to public dances and public dance halls or ballrooms is being violated, or whenever any indecent act shall be committed or when any disorder of a gross, violent or vulgar character shall take place therein. (1948 C., Ch. 17, § 16; 1960 C., § 715.160; 1994 C., § 8.32.160; Ord. No. 70813, § 5(8.32.160), 7-16-2018.)

8.32.170 Closing.

All public dances shall be discontinued and public dance halls and ballrooms shall be closed not later than one a.m.; provided, however, that the Director of Public Safety may grant special permits for dance halls or ballrooms to remain open until a later hour on special occasions such as New Year's Eve, or on other holidays. Further, such public dances or balls may remain open after the hour of one a.m. at the discretion of the Director of Public Safety.

Provided further that any dance hall or public dance located within an establishment possessing a valid "3:00 a.m. closing permit" issued under Chapter 14.28 of this Code may remain open during those hours when the establishment may legally serve alcoholic beverages. (1948 C., Ch. 17, § 17; 1960 C., § 715.170; 1994 C., § 8.32.170; Ord. No. 70813, § 5(8.32.170), 7-16-2018; Ord. No. 58470, § 1, 1982; Ord. No. 49621, § 1(7), 1959.)

8.32.180 Minors—Prohibited after eight p.m.—Exceptions.

No person under the age of seventeen shall be permitted to attend or take part in any public dance after the hour of eight p.m., unless such person be accompanied by a parent or guardian, or a respectable adult person who has a written permit of the parent or guardian of the minor to take such person to the dance. (1948 C., Ch. 17, § 18; 1960 C., § 715.180; 1994 C., § 8.32.180; Ord. No. 70813, § 5(8.32.180), 7-16-2018.)

8.32.190 Minors—Misrepresentation of age.

It shall be a misdemeanor for any person to represent himself to have reached the age of seventeen years, in order to obtain admission to a public dance hall or to be permitted to remain therein, when such person has not reached the age of seventeen years. (1948 C., Ch. 17, § 19; 1960 C., § 715.190; 1994 C., § 8.32.190; Ord. No. 70813, § 5(8.32.190), 7-16-2018.)

8.32.200 Minors—Misrepresentation as to parent or guardian.

It shall be a misdemeanor for any person not the parent or guardian of another person to represent himself to be the parent or guardian of the other person in order that the person may obtain admittance to a public dance hall or ballroom, or to be permitted to remain therein; or to aid, assist or attempt to aid or assist any person under the age of seventeen years to obtain admission to or be permitted to remain in a public dance hall or ballroom, or in any way contribute to his delinquency. (1948 C., Ch. 17, § 20; 1960 C., § 715.200; 1994 C., § 8.32.200; Ord. No. 70813, § 5(8.32.200), 7-16-2018.)

8.32.210 Disorderly or indecent conduct—Presence of undesirable persons.

No proprietor, lessee or manager of any public dance hall or ballroom or public dance, obtaining a license or permit under this chapter, shall permit any disorderly or indecent conduct, or the use of any immoral, profane or indecent language or to allow or permit any indecent act, such as dancing couples assuming vulgar or suggestive positions or performing vulgar or suggestive movements, or permit the public dance hall or ballroom to become a place where thieves, prostitutes, male or female procurers, vagrants or other disorderly persons resort; and it shall be unlawful for any male or female procurers, vagrants, thieves or person of known bad character to attend any public dance

or ball. (1948 C., Ch. 17, § 21; 1960 C., § 715.210; 1994 C., § 8.32.210; Ord. No. 70813, § 5(8.32.210), 7-16-2018.)

8.32.220 Applicability of chapter.

The provisions of this chapter shall in no way interfere with private parties given at homes of people or with dances given by the City or in public schools, or by bonafide societies, clubs or associations where the attendance is restricted to the bonafide members of the society, club or association, and where no admission fee is charged or accepted. (1948 C., Ch. 17, § 22; 1960 C., § 715.220; 1994 C., § 8.32.220; Ord. No. 70813, § 5(8.32.220), 7-16-2018.)

Chapter 8.34

DANCE STUDIOS

Sections:

8.34.010 Dance studio and operator defined.
8.34.020 Rate schedule.
8.34.030 Intent.
8.34.040 Contracts to comply with advertising.
8.34.050 Penalty for violations.

8.34.010 Dance studio and operator defined.

"Dancing studio" is hereby defined as a place where the art of dancing in any of its forms is taught to persons for compensation, and shall include all forms of dancing.

"Operator" is hereby defined as any person, firm or corporation or employee or agent thereof. (1960 C., § 715.240; 1994 C., § 8.34.010; Ord. No. 50559, § 1, 1961.)

8.34.020 Rate schedule.

No person, firm or corporation shall operate or cause to be operated within the City a dancing studio without first publishing a schedule of rates or charges setting forth therein the rate or charge per lesson, per hour or per instructional performance for instruction. The schedule is required to be located in a conspicuous place within the dancing studio. The operator of the dancing studio shall direct the attention of each person to the schedule of rates or charges prior to entering into any contract or agreement for dancing instructions. Should any person desiring to receive dancing instructions be a minor, then the attention of the parent or legal guardian of the minor shall be directed to the schedule of rates or charges prior to the entering into any agreement for dancing instructions. The schedule of rates and charges shall state clearly therein the rate of instructions per hour, half-hour or quarter of an hour, or other period of time designated by the operator, or the rate per lesson and the duration of the time for lesson, or the rate per course with a full description of the dancing course set forth therein. (1960 C., § 715.250; 1994 C., § 8.34.020; Ord. No. 50559, § 2, 1961.) McQuillin: 24.209 Dances, dance halls, dance schools 26.153 Dance places

8.34.030 Intent.

It is the intention of this chapter to prevent frauds from being perpetrated on persons desiring or contracting for dancing instructions by requiring the operators of dancing studios to post the rates of dancing instructions. (1960 C., § 715.260; 1994 C., § 8.34.030; Ord. No. 50559, § 3, 1961.)

8.34.040 Contracts to comply with advertising.

Any operator of a dancing studio who shall place advertisements in any newspaper, magazine, or other periodical, offer to the public free dance lessons, or dancing instructions, the rates thereof or other inducements for the purpose of attracting persons to enter into any contract for dance instruction, who shall fail or refuse to enter into a contract as set forth in the advertisement, according to the terms of the advertisement shall be deemed guilty of a misdemeanor and shall be fined upon the conviction thereof the sum provided in Section 8.34.050. (1960 C., § 715.270; 1994 C., § 8.34.040; Ord. No. 50559, § 4, 1961.)

8.34.050 Penalty for violations.

Any person, firm or corporation operating, or causing to be operated, a dancing studio who shall fail to comply with the provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction shall be fined not less than one hundred dollars, nor more than five hundred dollars, and each day shall constitute a separate violation. (1960 C., § 715.280; 1994 C., § 8.34.050; Ord. No. 50599, § 5, 1961.)

Chapter 8.36

DETECTIVE AGENCIES

City Counsel Ops.: 8227

RSMo:

RSMo 84.340 (2016) Regulation of private detectives

Sections:

8.36.010 **Definitions.**

8.36.020 **License—Required.**

8.36.030 **License—Application—Investigation of applicant.**

8.36.040 **License—Issuance—Certificate.**

8.36.060 **License—Expiration.**

8.36.070 **License—Renewal.**

8.36.080 **License—Time of issuance—Transfer.**

8.36.090 **License—Revocation.**

8.36.100 **License—Certificate—Posting—Surrender.**

8.36.110 **License—Certificate—Duplicate.**

8.36.120 **New office location.**

8.36.130 **Applicability of chapter to public authorities.**

8.36.140 **Employees—License not required.**

8.36.150 **Employees—Information confidential—Reports.**

8.36.160 **Working without license—Private watchmen.**

8.36.010 Definitions.

The following words when used in this chapter shall have the meanings ascribed to them in this section:

A. "Detective agency" means any person engaged in the detective business, for hire, who employs one or more persons as employees, assistants, clerks, bookkeepers or operatives in his business; provided, that persons engaged in such business, whose employees, other than office employees, are in full uniform, shall not be classed as a detective agency.

B. "Detective business" means the business of making, for hire, an investigation for the purpose of obtaining information with reference to any of the following matters: Crimes against any commonwealth or wrongs done or threatened; the habits, conduct, movements, associates, transactions, reputation or character of persons; the credibility of witnesses or other persons; the location or recovery of lost or stolen property; securing evidence to be used before authorized investigating committees, boards of award or arbitration, or in the trial of civil or criminal cases; the causes, origin or responsibility for fires or accidents, or injury to real or personal property; or strikes and labor difficulties.

C. "Private detective" means a person engaged in the detective business for hire, who does not employ or use any employees, assistants, clerks, bookkeepers or operatives. (1948 C., Ch. 18, § 1; 1960 C., § 653.010; 1994 C., § 8.36.010.) City Counselor Ops.: 9710

8.36.020 License—Required.

No person shall engage in the business of private detective or establish, conduct, maintain or operate a detective agency in the City, without having first obtained a license to do so as provided in this chapter. (1948 C., Ch. 18, § 2; 1960 C., § 653.020; 1994 C., § 8.36.020.)

8.36.030 License—Application—Investigation of applicant.

Any person intending to establish or conduct the business of a private detective or a detective agency, shall file a written application for a license which shall contain the following:

A. If the applicant is a person, the application shall be signed and verified by the person, and if the applicant is a firm or partnership, the application shall be signed and verified by each individual composing or intending to compose the firm or partnership. The application shall state the full name, age, residence, present and previous occupations, covering a period of five years prior to the application, of each person or individual so signing the same, and shall show that he is a citizen of the United States. The application shall also give the location of the office in the City, and if there is more than one office, the location of each of same, and facts sufficient to show the good character, competency and integrity of the person so signing the application. The application shall be approved as to each person so signing by not less than five reputable citizens, each of whom shall certify that he has personally known the applicant for a period of at least five years prior to the filing of the application, that he has read the application and believes each of the statements made therein to be true, and that the person is honest, of good character, competent and not related or connected to the person so certifying by blood or marriage. The certificate of approval shall be signed by each of the citizens and duly verified before an officer authorized to administer oaths.

B. If the applicant is a corporation, the application shall be signed and verified by the president, secretary and treasurer thereof, and shall specify the name of the corporation, the date and place of its incorpora-

tion, the location of its principal place of business in the City, and shall be accompanied by a copy of its certificate of incorporation. Each and every requirement of Subsection A, as to a person or the individual members of a firm or partnership, shall apply to the president, secretary and treasurer of the corporation, and each of the officers, his successor or successors, shall, prior to the entering upon the discharge of his duties, sign and verify a like statement, approved in like manner, as is by Subsection A, prescribed in the case of a person or individual member of a firm or partnership. In the event of the death, resignation or removal of any officer, due notice of that fact shall forthwith be given in writing to the License Collector.

C. Upon the filing of the application with the License Collector, he shall at once deliver it to the Chief of Police, who shall investigate the application and the matters and things stated and transmit his report to the License Collector with respect thereto, together with such application within ten days after the receipt thereof by him, or who if a patrolman has served in the Detective Bureau for not less than three years.

D. Every applicant shall establish to the satisfaction of the License Collector that the applicant, if he be a person, or in the case of a firm, company, partnership or corporation, that at least one member of the firm, partnership, company or corporation, has been regularly employed as a detective or shall have been a member of the United States government Secret Service, a sheriff or a member of a City Police Department of a rank or grade higher than a patrolman for a period of not less than three years. (1948 C., Ch. 18, § 3; 1960 C., § 653.030; 1994 C., § 8.36.030.)

8.36.040 License—Issuance—Certificate.

If it appears from an examination of the application and the report and recommendation of the Chief of Police as provided by Section 8.36.030.C. that the applicant is of good character, and of approved competency and integrity, the License Collector shall issue and deliver to the applicant a license to engage in the detective business in the City. The license certificate shall be in a form to be prescribed by the License Collector and shall specify the full name of the applicant, the location of the place of business of the applicant, the date on which it is issued, and the date on which it will expire. (1948 C., Ch. 18, § 4; 1960 C., § 653.040; 1994 C., § 8.36.040.)

8.36.060 License—Expiration.

All licenses shall expire on the thirtieth day of April following the date of issue, and no license shall be issued for any period of time less than a year or for a less sum than the full annual license fee. The fee for each license issued shall be collected in full at the time of the issuance and delivery thereof. (1948 C., Ch. 18, § 5(part); 1960 C., § 653.060; 1994 C., § 8.36.060.)

8.36.070 License—Renewal.

When a license shall have been granted to any person to engage in the business of private detective, or to establish, maintain or conduct a private detective agency as provided in this chapter, any license shall be renewed after its expiration merely on the application of the licensee, and Section 8.36.030 shall not govern the manner and form of the application for renewal except in the case of a licensee whose license shall have been revoked. (1948 C., Ch. 18, § 6; 1960 C., § 653.070; 1994 C., § 8.36.070.)

8.36.080 License—Time of issuance—Transfer.

Licenses may be issued at any time during the license year upon compliance with all the provisions of this chapter and the payment of the full fees herein prescribed. No license granted under this chapter shall be transferable. (1948 C., Ch. 18, § 7; 1960 C., §§ 653.080, 653.090; 1994 C., § 8.36.080.)

8.36.090 License—Revocation.

The license provided for by this chapter shall be revoked by the License Collector upon hearing duly had, for any of the following reasons:

A. If it shall appear that the licensee has knowingly violated any of the provisions of this chapter;

B. If it shall appear that the licensee has knowingly instructed any employee to violate any of the provisions of this chapter;

C. If it shall appear that the licensee has knowingly made a false report in respect to any of the matters in which the applicant may be employed;

D. If it shall appear that the licensee has divulged any information which he acquired from or for his client to any person other than his client, except when authorized by his client to divulge the information, or as he may be required to do by law;

E. If it shall appear that the licensee has knowingly and willfully sworn falsely in any judicial proceeding, or suborned perjury therein;

F. If it shall appear that the licensee has knowingly permitted any employee to make a false report or has knowingly permitted any employee to divulge any information acquired from or for his client;

G. If it shall appear that the licensee has accepted money or gratuities from any person whose affairs he may have been employed by any other person to investigate.

In the event it shall appear that any co-partner or any person, member of a firm or any officer of a corporation holding a license hereunder has done any of the things set forth in the foregoing Subsections A to G, both inclusive, then the License Collector shall revoke the license of the person, partnership, firm or corporation. (1948 C., Ch. 18, § 8; 1960 C., § 653.100; 1994 C., § 8.36.090.)

8.36.100 License—Certificate—Posting—Surrender.

Immediately upon the receipt of a license issued by the License Collector pursuant to this chapter, the licensee named therein shall cause the license certificate to be posted up and at all times displayed in the conspicuous position in his place of business, so that all persons visiting the place may readily see the same. In case of revocation, the license certificate shall be surrendered to the License Collector within five days after notice in writing to the holder has been given that the license has been revoked. (1948 C., Ch. 18, § 9; 1960 C., § 653.110; 1994 C., § 8.36.100.)

8.36.110 License—Certificate—Duplicate.

If it shall be established to the satisfaction of the License Collector in accordance with the rules and regulations prescribed by him, that an unexpired license certificate issued in accordance with the provisions of this chapter has been lost or destroyed, without fault on the part of the holder, the License Collector shall issue a duplicate license certificate for the unexpired portion of the period of the original license. (1948 C., Ch. 18, § 10; 1960 C., § 653.120; 1994 C., § 8.36.110.)

8.36.120 New office location.

If the holder of an unexpired license issued pursuant to this chapter shall remove his office, he shall, within twenty-four hours immediately following the removal, give written notice of removal to the License Collector, which notice shall describe the premises to which the removal is made and the date on which it was made, and he shall send his license certificate to the City Register, who shall write or stamp, over his signature, a statement to the effect that the holder thereof, on the date stated in the written notice, removed his office from the place originally described in the license certificate to the place described in the written notice. The license certificate with the endorsement thereon shall be returned to the licensee named therein. (1948 C., Ch. 18, § 11; 1960 C., § 653.130; 1994 C., § 8.36.120.)

8.36.130 Applicability of chapter to public authorities.

Nothing in this chapter shall apply to any officer belonging to the police force of the state, or of any county, city, town, village or other municipal corporation thereof, appointed or elected by due authority of law, nor to any person in the employ of any police force or Police Department of the state or of any county, city, town, village or other municipal corporation thereof, while engaged in the performance of his official duties, nor to any state's attorney or any person in the employ of any state's attorney while engaged in the performance of his official duties. (1948 C., Ch. 18, § 12; 1960 C., § 653.140; 1994 C., § 8.36.130.)

8.36.140 Employees—License not required.

The holder of an unexpired license for a detective agency issued pursuant to this chapter, may employ, to assist him in his work and in the conduct of his business, as many persons as he may deem necessary, and shall at all times during such employment be accountable for the good conduct in the business of each and every person so employed. Any person so in the employ of the holder of a license for a detective agency need not be the holder of a license certificate issued pursuant to the provisions of this chapter. (1948 C., Ch. 18, § 13; 1960 C., § 653.150; 1994 C., § 8.36.140.)

8.36.150 Employees—Information confidential—Reports.

No person who is or has been an employee of a holder of a license for a detective agency granted under the terms of this chapter shall divulge to anyone other than his employer, except as he may be required to by law, any information acquired by him during employment in respect to any of the work to which he shall have been assigned by the employer, or any information obtained by him in the employer's service.

No person who is an employee of a holder of such a license shall make any false reports or account to the

employer. (1948 C., Ch. 18, § 14; 1960 C., § 653.160; 1994 C., § 8.36.150.)

8.36.160 Working without license—Private watchmen.

It shall be unlawful for any person to act as or hold himself out as, a special or private detective for hire, within the City, or for any person to solicit, engage in or to hold out himself as being engaged in the business of furnishing or supplying special or private detectives within the City, unless the person is licensed under this chapter or is regularly employed by a duly licensed special or private detective; provided, however, that this chapter shall not apply to special or private policemen or watchmen, or other persons engaged only in the business of doing police duty and not in the detective or secret service business. (1948 C., Ch. 18, § 15; 1960 C., §§ 653.170, 653.180; 1994 C., § 8.36.160.)

Chapter 8.37

DOMESTIC PARTNERSHIPS

Sections:

8.37.010 Domestic partnership defined.
8.37.020 Domestic partnership registration.
8.37.030 Termination of domestic partnerships.
8.37.040 Filing fees.
8.37.050 Rights of registered domestic partners.
8.37.060 Interference with registration—Restriction of rights—Unlawful.
8.37.070 Agreements to waive provisions void.
8.37.080 Penalty for violation.

8.37.010 Domestic partnership defined.

When used in this chapter, the term "domestic partnership" means two persons, both of whom are eighteen years of age or older, neither of whom is married or related by blood to the other in a manner that would bar marriage in the State of Missouri, who have a close and committed personal relationship, who live together and have been living together on a continuous basis, and who have registered as domestic partners and have not terminated the domestic partnership, in accordance with the provisions of this chapter. (1994 C., § 8.37.010; Ord. No. 64401, § 1, 1998.)

8.37.020 Domestic partnership registration.

Persons may register as domestic partners if they are residents of the City or if at least one (1) domestic partner is a current employee of the City of St. Louis on the date of registration. In order to register, persons shall execute a domestic partnership registration certificate on a form provided by the City Register and submit it to the City Register who shall maintain a registry of domestic partnerships. No person shall be eligible to register as a domestic partner who at the time of registration or at any time during the prior six (6) months was registered as a member of another domestic partnership. Domestic partnerships registered in any city or county other than the City of St. Louis shall be valid within the City of St. Louis upon the filing of a certified copy of the registration with the City Register. (1994 C., § 8.37.020; Ord. No. 71824, § 1, 4-17-2024; Ord. No. 64401, § 2, 1998.)

8.37.030 Termination of domestic partnerships.

A. A domestic partnership shall terminate at the death of one (1) of the partners or upon the filing of a termination statement with the City Register, or upon the marriage of a domestic partner to a person other than their registered domestic partner as represented in this registry, or upon the entry of a domestic partner into a civil union or other domestic partnership with someone other than their registered domestic partner as represented in this registry. The domestic partner filing the termination statement shall declare that the domestic partnership is terminated and, if the termination statement has not been signed by both domestic partners, that the other domestic partner has been notified of such termination by registered mail, return receipt requested.

B. Any person registered as a domestic partner shall within thirty (30) days of any change in that status give notice to any party who, in order to qualify for a benefit or right, was originally given a copy of the domestic partnership certificate.
(1994 C., § 8.37.030; Ord. No. 71824, § 2, 4-17-2024; Ord. No. 64401, § 3, 1998.)

8.37.040 Filing fees.

The City Registrar shall set reasonable filing fees for the filing of a registration, termination or amendment or obtaining additional copies of a domestic partnership certificate. Any fees for such filings currently in effect shall continue until and unless amended

by rule by the City Register. (1994 C., § 8.37.040; Ord. No. 64401, § 4, 1998.)

8.37.050 Rights of registered domestic partners.

A. All health care facilities operating within the City shall allow the registered domestic partner of a patient to visit such patient unless no visitors are allowed or the patient expresses a desire that visitation by the domestic partner be restricted.

B. All jail facilities owned or operated by the City shall allow the registered domestic partner of an inmate to visit such inmate unless the authority in charge of said facility reasonably believes that such visit is a threat to the security of the inmate or the inmate expresses a desire that visitation by the domestic partner be restricted. (1994 C., § 8.37.050; Ord. No. 64401, § 5, 1998.)

8.37.060 Interference with registration—Restriction of rights—Unlawful.

It shall be a violation of this chapter for any person to knowingly interfere with the registration of any qualified individual as a domestic partner or to limit or restrict in any manner any right of a domestic partner as provided in Section 8.37.050 of this chapter. (1994 C., § 8.37.060; Ord. No. 64401, § 6, 1998.)

8.37.070 Agreements to waive provisions void.

Any written or oral agreement which purports to waive any provision of this chapter is against public policy and void. (1994 C., § 8.37.070; Ord. No. 64401, § 8, 1998.)

8.37.080 Penalty for violation.

Any person convicted of a violation of this chapter shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by a term of imprisonment of not more than 90 days or by a combination of both a fine and imprisonment. (1994 C., § 8.37.080; Ord. No. 64401, § 7, 1998.)

Chapter 8.38

EMBALMERS

RSMo:

RSMo Ch. 333 (2016) Embalmers and funeral directors

City Counselor Ops.: 8769

Sections:

8.38.020 Permit—Expiration.

8.38.030 Transporting bodies from unlicensed embalmers.

8.38.020 Permit—Expiration.

Each permit granted in pursuance of Section 8.38.010 shall expire on the thirtieth day of June of each year. (1948 C., Ch. 10, § 8 A; 1994 C., § 8.38.020; Ord. No. 46583, § 2, 1953.)

8.38.030 Transporting bodies from unlicensed embalmers.

Any person who shall accept for transportation beyond the limits of the City, any dead human body from any embalmer not authorized and licensed in accordance with this chapter, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 9; 1960 C., § 431.020; 1994 C., § 8.38.030.)

Chapter 8.40

EMPLOYMENT AGENCIES

For temporary help supply service businesses, see § 8.06.667.

City Counselor Ops.: 8451

Sections:

8.40.010 Intelligence office defined.

8.40.020 License—Required—Endorsement—Limitations.

8.40.040 Bond.

8.40.050 Posting copy of chapter.

8.40.060 Deceptive practices.

8.40.070 Revocation of license.

8.40.010 Intelligence office defined.

Whosoever shall open or keep an office or place in the City for the purpose of obtaining employment for others, or obtaining employees for others, or giving information whereby employers or employees may be obtained for a compensation to be paid by either party, shall be deemed to be the keeper of an intelligence office. (1948 C., Ch. 21, § 1; 1960 C., § 652.010; 1994 C., § 8.40.010.)

8.40.020 License—Required—Endorsement—Limitations.

No person shall keep an intelligence office in the City without a license therefor first obtained from the License Collector. The License Collector shall issue all licenses provided for by this chapter, provided, that each application for a license shall be in writing and shall state where the proposed intelligence office shall

be located. No license shall be granted under this chapter until the License Collector has received from the Police Commissioners an endorsement on the back of the application to the effect that, in their opinion, the applicant is a person of good moral character. No license shall be issued for the maintenance of an intelligence office in any rooming house, boarding house or lodging house, except where the rooming house, board-

ing house or lodging house is, or is to be during the term of the license, maintained by a benevolent or fraternal order. (1948 C., Ch. 21, § 2(part); 1960 C., § 652.020; 1994 C., § 8.40.020; Ord. No. 48909, § 1(2 part), 1958.)

City Counselor Ops.: 8468

8.40.040 Bond.

The License Collector shall require with each application for a license, a bond in the penal sum of five hundred dollars payable to the City, as obligee, executed by the applicant and one or more sureties to be approved by the Collector and conditioned that the obligors therein shall not violate any of the duties, terms, conditions, provisions or requirements of this chapter. The License Collector is authorized to commence and prosecute actions on any such bond in the name of the City for any violation of any of the conditions of the bond. (1948 C., Ch. 21, § 2(part); 1960 C., § 652.030; 1994 C., § 8.40.040; Ord. No. 48909, § 1(2 part), 1958.)

City Counselor Ops.: 8468

8.40.050 Posting copy of chapter.

Every person holding such license shall keep a copy of this chapter conspicuously posted in the office thereby licensed. (1948 C., Ch. 21, § 2(part); 1960 C., § 652.050; 1994 C., § 8.40.050; Ord. No. 48909, § 1(2 part), 1958.)

8.40.060 Deceptive practices.

Any keeper of an intelligence office who shall make any willful misrepresentation, or receive money for positions, either directly or indirectly, unless position is secured, or who shall willfully deceive any person, or who shall ask, demand or receive any unusual or exorbitant fee, or be guilty of any deception whatever, to any person who may employ him or her, as the case may be, shall be deemed guilty of a misdemeanor and in addition to the penalty therefor the license of such person shall thereby become forfeited, and he shall be incompetent, thereafter, to receive a license under the provisions of this chapter; provided, however, that this section shall in nowise appertain or apply to the employment bureaus of benevolent or fraternal societies. (1948 C., Ch. 21, § 3; 1960 C., § 652.070; 1994 C., § 8.40.060.)

8.40.070 Revocation of license.

The Mayor shall have power and authority, on good cause shown, to revoke any license issued under this chapter, and upon revocation shall certify the same to the License Collector; provided, however, that the person complained of shall have a reasonable opportunity to defend himself; provided further, that each license issued by virtue of this chapter shall express on its face that it is received and held subject to be revoked at the pleasure of the Mayor. (1948 C., Ch. 21, § 4; 1960 C., § 652.060; 1994 C., § 8.40.070.)

Chapter 8.41

FIREARMS MANUFACTURE

Sections:

8.41.010 Definitions.
8.41.020 Regulation.
8.41.030 Violation—Penalty.

8.41.010 Definitions.

For purposes of this chapter, the following words are to have the following meanings:

A. "Person" and "whoever" include any individual, corporation, company, association, firm, partnership, society, or joint stock company.

B. "Special firearm" means:

1. A weapon designed or redesigned, made or remade, and intended to be fired from the shoulder and designed or redesigned and made or remade to use the energy of the explosive in a fixed shotgun shall to fire through a smooth bore either a number of ball shot or a single projectile for each single pull of the trigger and having one or more barrels less than eighteen inches in length;

2. Any weapon made from a shotgun (whether by alteration, modification, or otherwise) if such weapon as modified has an overall length of less than twenty-six inches;

3. Any firearm muffler or firearm silencer;

4. Any weapon designed or redesigned, made or remade, and intended to be fired from the shoulder and designed or redesigned and made or remade to use the energy of the explosive in a fixed metallic cartridge to fire only a single projectile through a rifled bore for each single pull of the trigger having one or more barrels less than sixteen inches in length;

5. Any weapon made from a rifle (whether by alteration, modification or otherwise) if such weapon, as modified, has an overall length of less than twenty-six inches;

6. Any destructive device.

Such term does not include an antique firearm.

C. "Destructive device" means:

1. Any explosive, incendiary, or poison gas:

a. Bomb;

b. Grenade;

c. Rocket having a propellant charge of more than four ounces;

d. Missile having an explosive or incendiary charge of more than one-quarter ounce;

e. Mine; or

f. Device similar to any of the devices described in the preceding clauses;

2. Any type of weapon (other than a shotgun or a shotgun shell which is generally recognized as particularly suitable for sporting purposes) by whatever name known which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant, and which has any barrel with a bore of more than one-half inch in diameter; and

3. Any combination of parts either designed or intended for use in converting any device into any destructive device described in Subsection C.1 or C.2 of this section and from which a destructive device may be readily assembled.

"Destructive device" shall not include any device which is neither designed nor redesigned for use as a weapon; any device, although originally designed for use as a weapon, which is redesigned for use as a signaling, pyrotechnic, line throwing, safety, or similar device; surplus ordinance sold, loaned, or given by the Secretary of the Army pursuant to the provisions of Section 4684(2), 4685, or 4686 of Title 10, United States Code; or any other device which is not likely to be used as a weapon, is an antique, or is a rifle which the owner intends to use solely for sporting purposes.

D. "Importer" means any person engaged in the business of importing or bringing firearms or ammunition into the United States for purposes of sale or distribution; and "licensed importer" means any such person licensed under the provisions of Chapter 44 of Title 18, United States Code.

E. "Manufacturer" means any person engaged in the manufacture of firearms or ammunition for purposes of sale or distribution.

F. "Dealer" means (1) any person engaged in the business of selling firearms or ammunition at wholesale or retail; (2) any person engaged in the business of repairing firearms or of making or fitting special barrels, stocks, or trigger mechanisms to firearms; or (3) any person who is a pawnbroker. "Licensed dealer" means any dealer who is licensed under the provisions of Chapter 44, Title 18, United States Code.

G. "Pawnbroker" means any person whose business or occupation includes the taking or receiving, by way of pledge or pawn, of any firearm or ammunition as security for the payment or repayment of money.

H. "Collector" means any person who acquires, holds, or disposes of firearms or ammunition as curios or relics, which are not operative or capable of being made operative.

I. "Antique firearm" means:

1. Any firearm (including any firearm with a matchlock, flintlock, percussion cap, or similar type of ignition system) manufactured in or before 1898; and

2. Any replica of any firearm described in Subsection F.1 of this section if such replica:

a. Is not designed or redesigned for using rimfire or conventional centerfire fixed ammunition; or

b. Uses rimfire or conventional centerfire fixed ammunition which is no longer manufactured in the United States and which is not readily available in the ordinary channels of commercial trade.

J. "Ammunition" means ammunition or cartridge cases, primers, bullets, or propellant powder designed for use in any firearm. (1994 C., § 8.41.010; Ord. No. 57123, § 1, 1976.)

8.41.020 Regulation.

It shall be unlawful for any person, except an authorized peace officer, a licensed importer, licensed manufacturer, licensed pawnbroker, or licensed dealer to engage in the business of manufacturing, assembling or dealing in special firearms or the ammunition therefor, or in the course of such business to ship, transport, or otherwise sell or distribute, or receive any special firearms or the ammunition therefor, or to possess any special firearm or the ammunition therefor. (1994 C., § 8.41.020; Ord. No. 57124, § 2, 1976.)

8.41.030 Violation—Penalty.

Whoever violates any provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction shall be imprisoned for a period of not less than sixty days nor more than ninety days. (1994 C., § 8.41.030; Ord. No. 57123, § 3, 1976.)

Chapter 8.43

HORSE-DRAWN VEHICLES

Sections:

8.43.010	**Definitions.**
8.43.020	**Operation requirements generally.**
8.43.030	**Application for certificate of convenience and necessity—Requirements.**
8.43.040	**Application hearing—Determination by Board.**
8.43.050	**Fees.**
8.43.060	**Discontinuance of service—Transfer of certificates.**
8.43.070	**Suspension or revocation of certificate of convenience and necessity and licenses.**
8.43.080	**Offices required.**
8.43.090	**Safety and health.**
8.43.100	**Insurance required—Accident report.**
8.43.110	**Rules and regulations promulgation.**
8.43.120	**Stops and stands.**
8.43.130	**Penalty for violation.**

8.43.010 Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them in this section:

A. "Certificate holder" means any person holding one or more certificates of convenience and necessity issued by the Board of Public Service for the operation of horse-drawn vehicles.

B. "Director" means the Director of Streets, his deputies, inspectors or agents.

C. "For hire" means the provision of services, or the offering of the services, of a horse-drawn vehicle for the payment of money or other consideration.

D. "Horse-drawn vehicle" means a wagon, coach or other vehicles which is powered in whole or in part by one or more horses, mules, or other animals.

E. "Person" means any person, firm, corporation, partnership or association of persons of any kind. (1994 C., § 8.43.010; Ord. No. 60183, § 1, 1986.)

8.43.020 Operation requirements generally.

The Board of Public Services is authorized and empowered to promulgate rules and regulations to carry out the provisions of this chapter. The rules and regulations shall be in writing, and shall be available to all certificate holders and their employees, and the public at the office of the Director of Streets. Any changes in the rules and regulations shall be published in the City Journal.

A. The Director of Streets may summarily withdraw the authorization granted in this section from any person who he finds is not operating in accordance with the regulations of the City, including, but not limited to, regulations with respect to public safety, insurance and equal employment opportunity or who, by its operation, is engaging in unfair or disruptive competition. Notice of withdrawal shall be sent by registered mail to the certificate holder's listed office in the City, to the Chief of Police of the City and shall be posted in the Civil Courts Building.

B. It shall be unlawful for any person to operate a horse-drawn vehicle within the City for any purpose after notice of withdrawal of privileges is posted in the Civil Courts Building. (1994 C., § 8.43.020; Ord. No. 60183, § 2, 1986.)

8.43.030 Application for certificate of convenience and necessity—Requirements.

An application for a certificate of convenience and necessity shall be addressed to the Board of Public Service. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant be a corporation, partnership or association of persons of any kind by its duly authorized officer or agent, and shall state the following facts:

A. The full name and address of the applicant, and if a partnership, the names and addresses of all partners; if a corporation or association of persons, the names and addresses of all the officers and directors thereof;

B. What, if any, previous experience the applicant has had, or if the applicant is a partnership, the partners therein have had, or if the applicant is a corporation or other association of persons, the officer and directors have had in horse-drawn vehicle operations;

C. The number of such vehicles the applicant desires to operate;

D. The passenger capacity of each vehicle;

E. The insurance to be carried, the amount of the insurance and the company issuing the policy. (1994 C., § 8.43.030; Ord. No. 60183, § 3, 1986.)

8.43.040 Application hearing—Determination by Board.

A. Upon the filing of an application for a certificate of convenience and necessity, the Board of Public Service shall conduct a hearing thereon to determine the public convenience and necessity. Notice of this hearing shall be given to the Metropolitan Police Department, to each Alderman whose ward is affected, and to all other interested persons at least three (3) days before the date set for the hearing. The kind of notice, the place of hearing and all facts connected with or relating to the hearing, shall be regulated by the Board of Public Service.

B. The Board of Public Service shall have power to issue or refuse to issue any certificate of convenience and necessity as the public welfare, convenience or necessity may require. In determining whether public convenience and necessity require the licensing of horse-drawn vehicles for which application may be made, the Board of Public Service shall take into consideration whether the demands of the public require the proposed or additional horse-drawn vehicle service within the City or in any particular part of the City; that existing service is not sufficient to properly meet the needs of the public; the financial responsibility of the applicant; the number, kind, type of equipment and the color scheme proposed to be used; the increased traffic congestion upon the streets of the City which may result, and whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the granting of the additional license; and other relevant facts as the Board may deem advisable or necessary. (1994 C., § 8.43.040; Ord. No. 60183, § 4, 1986.)

8.43.050 Fees.

If the Board of Public Service shall find that the public convenience and necessity requires the operation of horse-drawn vehicles, or additional vehicles, and shall issue its certificates to such effect, it shall be the duty of the License Collector to issue to the applicant a license for each vehicle authorized by the certificate of convenience and necessity issued by the Board of Public Service. Upon issuance of the licenses, the applicant shall pay an annual license tax in the sum of thirty dollars ($30.00) for each vehicle. This license and attachments, including, but not limited to, any Board of Public Service restriction, shall be in the possession of the operator of the horse-drawn vehicle at all times when the vehicle is on a public right-of-way. If any license is issued after the first day of December in any license year, the applicant shall pay a license tax of one-half (½) of the above-mentioned sum for the remainder of the license year. This license tax shall be due and payable on the first day of June of each year, and shall expire one (1) year thereafter, but the license shall be renewed from year to year, upon the payment of the required fee. (1994 C., § 8.43.050; Ord. No. 60183, § 5, 1986.)

8.43.060 Discontinuance of service—Transfer of certificates.

A. No person who had been licensed to operate horse-drawn vehicles may discontinue all or any of them without first filing with the Board of Public Service a statement, verified by affidavit, of the number of vehicles he desires to discontinue operating, and the reasons therefore, and obtaining permission from the Board of Public Service to discontinue operation as set forth in the statement. The withdrawal of any vehicle from operation, for the purpose of conditioning, overhauling or repairing shall not be considered discontinuing operation under this section.

B. No holder of a certificate of convenience and necessity may sell, assign, lease or otherwise transfer the rights and privileges granted thereunder to any other person without first having been granted permission to do so by the Board of Public Service. (1994 C., § 8.43.060; Ord. No. 60183, § 6, 1986.)

8.43.070 Suspension or revocation of certificate of convenience and necessity and licenses.

Any certificate of convenience and necessity and horse-drawn vehicle licenses which have been issued to any person may be revoked by the Board of Public Service, upon a hearing, after three (3) days' notice to the certificate holder.

A. If such person has failed, or shall fail, to file with the Secretary of State any report required by the Revised Statutes of Missouri;

B. The Board of Public Service shall find operation of the vehicles thereby authorized inconsistent with public convenience and necessity, or with public safety and welfare;

C. For any violation of any of the provisions of this chapter or other law by the holder of the certificate of license, or by any person in the operation of the

vehicles. (1994 C., § 8.43.070; Ord. No. 60183, § 7, 1986.)

8.43.080 Offices required.

Each certificate holder is required to have and maintain an office to which can be directed any reports of lost articles, complaints, inquiries, and related matters, and shall maintain a listing in all such business directories as are commonly available to the public. (1994 C., § 8.43.080; Ord. No. 60183, § 8, 1986.)

8.43.090 Safety and health.

A. All horses or other animals used to draw vehicles for hire in the City of St. Louis shall be made available for examination by a veterinarian upon forty-eight (48) hours' notice. Failure to allow such examination shall be grounds for suspension of the operating permit issued hereunder.

B. Each harness shall be equipped with a leather diaper. Each operator of a horse-drawn vehicle shall ensure that any feces deposited on the public right-of-way or any private property within the City is cleaned up immediately after such deposit or as soon thereafter as is reasonable.

C. All restrictions and requirements for motorized vehicles contained in the Revised Code of the City of St. Louis, Annotated 1980; or as amended; shall apply to horse-drawn vehicles except those which by nature, could have no application. All carriages shall in addition display the international sign for slow-moving vehicles on the rear of such vehicle.

D. The carriage shall not operate during the weekday rush hours of 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m. (1994 C., § 8.43.090; Ord. No. 60183, § 9, 1986.)

8.43.100 Insurance required—Accident report.

A. Every applicant for a license to operate a horse-drawn vehicle, whether the vehicle is to be operated by the owner or some other person, in addition to the other requirements of this chapter shall maintain and file with the Board of Public Service for each vehicle to be operated a policy of liability insurance which meets the requirements of this chapter.

B. Insurance required by this part shall be carried in a firm which has been duly licensed or permitted to do an insurance business in the state, and shall be kept and maintained continually in force and effect so long as the applicant shall be licensed to operate vehicles on the streets of the City.

C. Insurance as required herein shall be a policy of liability insurance in the sum of twenty-five thousand dollars ($25,000.00) because of bodily injury to or death of two (2) or more persons in any one accident, and in the sum of ten thousand dollars ($10,000.00) because of injury to or destruction of property of others in any one accident.

D. There shall be attached to all liability insurance policies issued pursuant to the requirements of this part, the following endorsement:

"In consideration of the premium stated in the policy to which this endorsement is attached, the company hereby waives a description of the vehicles to be insured hereunder and agrees to pay any final judgment for personal injury, including death, resulting therefrom, or damage to property, caused by any and all vehicles operated by the assured pursuant to the horse-drawn vehicle license issued by the City of St. Louis, within the limits set forth in the schedule shown hereon, and further agrees that upon its failure to pay any such final judgment, the judgment creditor may maintain an action in any courts of competent jurisdiction to compel such payment. Nothing contained in the policy or any endorsement thereon, nor the violation of any of the provisions thereof by the assured, shall relieve the company from liability hereunder or from the payment of such judgment. The policy to which this endorsement is attached shall not expire, nor shall cancellation take effect until after ten days' notice in writing by the company shall have been given to the Board of Public Service in the City of St. Louis at its office in City Hall, said ten days' notice to commence to run from the date notice is actually received at the office of the Board. Attached to and forming a party of policy number _____, issued by _____ company to _____."

E. The certificate holder, on or before the fifth day of each month, shall file with the Board of Public Service a report if there was an accident in the preceding month showing the number of accidents in which any horse-drawn vehicle owned and/or operated by him was involved, the nature of the damage, if any, to person or property resulting therefrom, the name and address of an persons who have outstanding claims because of any horse-drawn vehicle accident, and the amount, if any, paid during the preceding month in settlement of claims, including those in suit.

F. The failure to file the required report within the time provided for, or the filing or causing or intention-

ally permitting the filing or causing the filing of a false report, shall be a violation and shall also be ground for forfeiting the principal's certificate of convenience and necessity and forfeiting his license.

G. If any policy of insurance covering any or all of the vehicles authorized to be operated under a certificate of convenience and necessity fails to replace it immediately with another policy of insurance fully complying with the provisions of this chapter, the certificate of convenience and necessity and the licenses issued thereunder shall be ipso facto suspended. The certificate of convenience and necessity may be reinstated by the Board of Public Service upon application, with or without a hearing, upon compliance in full with all the provisions of this chapter. If the Board of Public Service reinstates the certificate of convenience and necessity, the License Collector, upon notice from the Board, shall reinstate the license issued thereunder.

H. It shall be unlawful for any person to operate or cause to be operated any horse-drawn vehicle for hire upon any public street in the City unless the required policy of insurance for the vehicle shall have been filed with the Board of Public Service, and be in full force and effect.

I. In the event of any final judgment against the owner or operator of any horse-drawn vehicle for injury to or death of, any person, or damage to property from the negligence of the owner or operator or for any reason regardless of fault, remaining unsatisfied for a period of thirty days, the Board of Public Service, upon complaint of the owner of the judgment, or of any other person shall forthwith revoke the certificate of convenience and necessity and all vehicle licenses of the owner or operator. (1994 C., § 8.43.100; Ord. No. 60183, § 10, 1986.)

8.43.110 Rules and regulations promulgation.

The Board of Public Service is authorized and empowered to determine and prescribe just, reasonable, safe, adequate and proper regulations, practices, equipment and service to be in force, to be observed, and to be used in the operation of horse-drawn vehicles, and to so fix and prescribe the same by order entered in its records, and to be served on each owner or operator by mailing a copy thereof to the owner or operator, or in such other manner as the Board by its rules may prescribe; and thereafter it shall be the duty of every owner or operator to observe and obey by all of its officers, agents and employees within thirty (30) days after receipt of such order. The Board of Public Service is also authorized to prescribe its procedure and that of its officers in the administration of this chapter, the form of all applications and reports required in this part, and regulations as may be reasonably necessary to the uniform and orderly manner in which the privileges conferred by certificates of convenience and necessity shall be exercised by the holders thereof. (1994 C., § 8.43.110; Ord. No. 60183, § 11, 1986.)

8.43.120 Stops and stands.

A. The Board of Public Service is authorized and empowered to establish designated stops and stands for horse-drawn vehicles, and to issue permits therefor with the approval of the Alderman in whose ward such stand or stop is contemplated.

B. For the purpose of taking on and discharging passengers, a horse-drawn vehicle shall stop at the far corner of all intersections, and while so stopped shall keep as close to the right-hand curb as practicable, and shall take on and discharge passengers as quickly as possible, so as not to unreasonably interfere with traffic. (1994 C., § 8.43.120; Ord. No. 60183, § 12, 1986.)

8.43.130 Penalty for violation.

Any person who violates or fails to comply with, or who permits or causes any person in his or its employ to violate or fail to comply with any of the provisions of this part, shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00). (1994 C., § 8.43.130; Ord. No. 60183, § 13, 1986.)

Chapter 8.44

INFORMATION DATE BUREAUS

Sections:

8.44.010 Definitions.
8.44.020 License and permit required.
8.44.030 Application.
8.44.040 Investigation—Permit issued.
8.44.060 Inspections and investigations.
8.44.070 Minors—Restrictions.
8.44.080 Minors—Misrepresentation of age.
8.44.090 Persons not allowed on premises.

8.44.010 Definitions.

For the purpose of this chapter, the following words and terms shall have the following meanings:

A. Information date bureau and date bureau means the business and practice of introducing persons of one sex to other persons of the opposite sex and of computing, congregating or otherwise assembling information relative to the personality, financial, psychological, character traits or other similar and related data of persons for the purpose of such introductions.

B. "Person" means any individual, association, club, joint stock company, syndicate, partnership, corporation, receiver, trustee, conservator or other officer appointed by any state or federal court. (1960 C., § 668.020; 1994 C., § 8.44.010; Ord. No. 55144, § 2, 1968; Ord. No. 55032, § 2, 1968.)

8.44.020 License and permit required.

No person shall engage in the business of operating an information date bureau or date bureau, as those terms are defined herein, without a license and permit. (1960 C., § 668.010; 1994 C., § 8.44.020; Ord. No. 55144, § 1, 1968; Ord. No. 55032, § 1, 1968.)

8.44.030 Application.

Any person desiring to engage in the business of conducting an information date bureau or date bureau shall make application to the Director of Public Safety stating:

A. The names, addresses, and positions of the owners or proprietors and principal officers and managers;

B. The address of the premises where the business is to be conducted;

C. A description of the methodology to be used in conducting the information date bureau or date bureau;

D. A schedule of the charges and fees for the herein described services;

E. Other matters the Director may prescribe by rule or regulation. (1960 C., § 668.030; 1994 C., § 8.44.030; Ord. No. 55144, § 3, 1968; Ord. No. 55032, § 3, 1968.)

8.44.040 Investigation—Permit issued.

Upon receipt of an application to engage in the business of conducting an information date bureau or date bureau, the Director shall make an investigation of the owners or proprietors and principal officers and managers and also inspect the premises where the business is to be conducted. In the event he finds that none of the owners, proprietors and principal officers or the managers of the information date bureau or date bureau have been convicted of a felony, a misdemeanor involving moral turpitude, or an ordinance violation involving moral turpitude, and if he further finds that the premises where the business is to be conducted is not frequented by convicted felons, prostitutes, male or female procurers, or other disorderly persons, then he shall issue a permit to conduct an information date bureau or date bureau. (1960 C., § 668.040; 1994 C., § 8.44.040; Ord. No. 55144, § 4, 1968; Ord. No. 55032, § 4, 1968.)

8.44.060 Inspections and investigations.

The Director, on his duly authorized agent, shall make periodic investigation and inspections into the manner in which the information date bureau or date bureau is conducting its business and of the premises of each licensee, and may upon complaint made to his office, make such additional investigations and inspections as may be deemed necessary. In the event the Director shall find:

A. That a condition exists which would have caused a denial of an application under Section 8.44.040;

B. That the premises where the business is conducted is frequented or attended by felons, prostitutes, male or female procurers, or other disorderly persons;

C. That persons under the age of seventeen years have been accepted as customers or have received the services of the information date bureau or date bureau; or

D. That the licensee or the principal officers or management of the information date bureau or date bureau have been convicted for a violation of any of the terms or conditions of this chapter. Upon a finding of any of the above conditions, the Director shall cause the license to be revoked and notify the licensee in writing at the business premises of the decision. (1960 C., § 668.060; 1994 C., § 8.44.060; Ord. No. 55144, § 6, 1968; Ord. No. 55032, § 6, 1968.)

8.44.070 Minors—Restrictions.

No person under the age of seventeen years shall apply for, or in any way receive, the service of an information date bureau or date bureau. Persons between the ages of seventeen and twenty-one years shall produce the written consent of his or her parent or

guardian before becoming eligible to receive such service. (1960 C., § 668.070; 1994 C., § 8.44.070; Ord. No. 55144, § 7, 1968; Ord. No. 55032, § 7, 1968.)

8.44.080 Minors—Misrepresentation of age.

No person shall accept as a customer, or in any way provide services of an information date bureau or date bureau to persons under the age of seventeen years except as provided in Section 8.44.070. The misrepresentation of the age of any person who has not attained the age of seventeen years shall not excuse the licensee from complying with the terms and conditions of this chapter. (1960 C., § 668.080; 1994 C., § 8.44.080; Ord. No. 55144, § 8, 1968; Ord. No. 55032, § 8, 1968.)

8.44.090 Persons not allowed on premises.

No licensee or his employees shall allow a convicted felon, prostitute, male or female procurer, or other disorderly persons to frequent or be in attendance of the premises of an information date bureau or date bureau. (1960 C., § 668.090; 1994 C., § 8.44.090; Ord. No. 55144, § 9, 1968; Ord. No. 55032, § 9, 1968.)

Chapter 8.46

INSURANCE ADJUSTORS

Sections:

8.46.010 Public insurance adjustor defined.
8.46.020 License—Required.
8.46.040 Contracts.
8.46.050 Fee payments by insurance companies.
8.46.060 Applicability of chapter.
8.46.070 Penalty for violation.

8.46.010 Public insurance adjustor defined.

For the purposes of this chapter, the term "public insurance adjustor" means any person who holds himself out as an authority on casualty loss adjustments, and/or who can be or is retained for a fee or for a percentage of any casualty loss recovery to assist in the preparation, filing and negotiating of fire and allied claim adjustments, including the preparation of inventories, estimates, factual proofs of loss, compiling and filing claims; or who shall hold himself out to be retained for a fee or for a percentage of recovery resulting from any claim of loss with any insurance company under the fire coverage and allied lines including windstorm, explosion, snow, hail, smoke, motor vehicle damage losses, inland marine, use and occupancy, rentals, improvements and betterments, commission and profit. (1994 C., § 8.46.010; Ord. No. 56481, § 2, 1973.)

8.46.020 License—Required.

No person shall engage in the business of public insurance adjusting or hold himself out to be a public insurance adjuster without having been licensed as a public insurance adjustor pursuant to this chapter. No corporation may engage in public insurance adjusting unless the service is the primary business of the corporation and unless at least one officer and all employees actually performing public insurance adjusting services shall have been licensed pursuant to this chapter. (1994 C., § 8.46.020; Ord. No. 56481, § 1, 1973.)

RSMo:

RSMo 325.010 et seq. (2016) Adjustors, public adjustors, public adjustor solicitors.

McQuillin:

26.120 Insurance companies; agents and brokers

8.46.040 Contracts.

No person shall receive any fee, commission, percentage of any casualty loss recovery, or other thing of value for performing the services described in Section 8.46.010 unless he first shall obtain a license as described in Section 8.46.030. No person licensed as a public insurance adjuster may receive any fee, commission or percentage of any casualty loss recovery or other thing of value unless the compensation is based upon a written memorandum signed by the party to be charged and specifying or clearly defining the amount and extent of the compensation. A copy of each memorandum or contract shall be filed with the fire marshal within two weeks after signing of the same by the party to be charged. The memorandum shall also contain the name of the owner of any real property to whom the casualty loss recovery will be paid and the name of the insurance company against which the claim will be made. (1994 C., § 8.46.040; Ord. No. 56481, § 4, 1973.)

8.46.050 Fee payments by insurance companies.

No insurance company may make any payment of any fee or portion of any casualty loss recovery to any person acting as a public insurance adjustor unless person shall be licensed as a public insurance adjustor. (1994 C., § 8.46.050; Ord. No. 56481, § 5, 1973.)

8.46.060 Applicability of chapter.

Nothing in this chapter shall apply to:

A. Licensed attorneys at law in this state acting in their professional capacity as such;

B. An actuary or a certified public accountant who provides information, recommendations, advice or services in his professional capacity, if neither he nor his employer receives any compensation directly or indirectly on account of the insurance contract that is the subject in whole or part of such information, recommendation, advice or services;

C. Regular salaried officers or employees of an insurer who devote substantially all of their services to activities other than public insurance adjusting while acting in their capacity as such when discharging the duties of their employment. (1994 C., § 8.46.060; Ord. No. 56481, § 6, 1973.)

8.46.070 Penalty for violation.

Any person, firm or corporation who shall be found guilty of violation of any provision of this chapter shall be punished by a fine of not less than two hundred fifty dollars or by imprisonment for not less than seven days nor more than ninety days or by both fine and imprisonment. (1994 C., § 8.46.070; Ord. No. 56481, § 7, 1973.)

Chapter 8.50

JUNKYARDS

For secondhand and junk dealers, see Ch. 8.82

RSMo:

RSMo 226.650 et seq. (2016) Junkyards

Sections:

8.50.010 Junk and junkyard defined.
8.50.020 Exclusion.
8.50.030 Fences—Required.
8.50.040 Fences—Maintenance.
8.50.050 Safety requirements.
8.50.060 Enforcement.
8.50.070 Penalty for violation.

8.50.010 Junk and junkyard defined.

The word "junk" means and includes discarded or no longer used iron, brass, copper, aluminum, tin, lead, or other metals, rope, rags, paper, plastic, cloth, rubber, pottery, porcelain, and glass; and empty bottles of different kinds and sizes when the number of each kind or size is less than one gross, and all articles and things discarded or no longer used as manufactured articles composed of, or consisting of, any one or more of the materials or articles herein mentioned, including parts of vehicles or machinery individually or in conglomeration stored or in the process of disassembly or any vehicle or machine with any parts missing or damaged beyond economical repair.

The term "junkyard" means any yard, parcel of ground, or enclosure other than an enclosed building where junk is bought, sold, bartered, or exchanged, or where junk is collected, received, stored, dismantled, assembled, sorted, or held in possession for resale, barter, or exchange, either at wholesale or retail. (1960 C., § 682.010; 1994 C., § 8.50.010; Ord. No. 53590, § 1, 1965.)

City Counselor Ops.: 9067, 10165

McQuillin:

24.353 Fencing of junkyards and other regulations

8.50.020 Exclusion.

The provisions of this chapter shall not apply to any yard, parcel of ground, or enclosure used exclusively for the storage or keeping of usable materials or equipment for the construction of buildings or structures. (1960 C., § 682.020; 1994 C., § 8.50.020; Ord. No. 53590, § 2, 1965.)

8.50.030 Fences—Required.

A. Every premises now or hereafter used as a junkyard which adjoins any street, alley, highway or thoroughfare shall be surrounded on all sides facing any street, alley, highway or thoroughfare (except for gates and doors for ingress or egress) by a masonry wall, wooden fence, metal or wire fence all of which shall compose an opaque and nontransparent surface at least eight (8) feet in height, so constructed to prohibit entry by children and to prevent removal of articles through apertures in the fence.

B. Apertures shall be regularly distributed and limited to not more than ten percent of the superficial area of the opaque and nontransparent fence except where such apertures would permit entry by children and to prevent removal of articles through apertures in the fence.

C. Such walls or fence in addition, shall be constructed in accordance with all applicable requirements of the building code of the City.

D. Fencing requirement shall apply to all junkyards, as defined in Section 8.50.010 within nine months of the effective date of the ordinance codified in this section, irrespective of when such junkyard was established and irrespective of any existing fencing.

E. All wood, metal or wire fence shall be protected from the elements and against decay or rust by a protective surface coating properly maintained. (1960 C., § 682.030; 1994 C., § 8.50.030; Ord. No. 57424, § 1, 1977; Ord. No. 55038, § 1, 1968; Ord. No. 53590, § 3, 1965.)

8.50.040 Fences—Maintenance.

Walls or fences shall be maintained in a neat substantial condition. Fences which are not of masonry construction shall be painted or otherwise protected from corrosion or deterioration, or shall be approved noncorrosive or nondeteriorating materials. Fences which are required to be painted and which are located along public highways or streets shall be painted on the exterior at least once every two years. (1960 C., § 682.040; 1994 C., § 8.50.040; Ord. No. 53590, § 4, 1965.)

8.50.050 Safety requirements.

No junk or other materials or articles shall be permitted to lean on or touch or be attached to or suspended from any wall or fence. No junk shall be stored or kept outside of the required walled or fenced area. (1960 C., § 682.050; 1994 C., § 8.50.050; Ord. No. 53590, § 5, 1965.)

8.50.060 Enforcement.

It shall be the duty of the Division of Buildings and inspection of the Department of Public Safety to enforce the provisions of this chapter. (1960 C., § 682.060; 1994 C., § 8.50.060; Ord. No. 53590, § 6, 1965.)

8.50.070 Penalty for violation.

Any person, tenant, owner, firm, partnership or corporation who shall violate or cause to be violated any of the provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than ten dollars nor more than five hundred dollars or by imprisonment for not more than ninety days or by both fine or imprisonment and each day's violation shall constitute a separate offense. (1960 C., § 682.070; 1994 C., § 8.50.070; Ord. No. 53590, § 7, 1965.)

Chapter 8.52

LAUNDRIES AND DRY CLEANING

RSMo:

RSMo 260.900 et seq. (2016)—Dry-cleaning facilities

Sections:

8.52.010 Dry cleaning definitions.
8.52.020 Dry cleaning license—Required.
8.52.030 Dry cleaning license—Application.
8.52.050 Dry cleaning license—Display.
8.52.060 Qualified attendant required.
8.52.070 Laundry defined.
8.52.080 Laundry license—Required.
8.52.090 Laundry license—Application.
8.52.110 Laundry license—Display.

8.52.010 Dry cleaning definitions.

"Dry cleaning plant establishment" means any place, building or structure, room, establishment or portion thereof, which is used for the purpose of dry cleaning of clothing, materials or fabrics, and includes any place where any self service machine is rented for compensation for the dry cleaning of clothing, materials or fabrics on a time or per load basis within the City.

"Qualified attendant" means a person having either at least one year's experience with the operational procedure of a dry cleaning system, or who shall have completed the prescribed course in dry cleaning conducted at the Hadley Technical High School or at the National Institute of Dry Cleaning. (1948 C., Ch. 13, § 105(2); 1960 C., § 663.020; 1994 C., § 8.52.010; Ord. No. 50487, § 1(part), 1961.)

8.52.020 Dry cleaning license—Required.

No person shall engage in, carry on or conduct the business of cleaning or blocking hats or of cleaning or pressing clothes (with a pressing machine) within the City without first obtaining a license from the License Collector. (1948 C., Ch. 35, § 2; 1960 C., § 622.010; 1994 C., § 8.52.020.)

McQuillin:

26.122 Laundries and dry cleaners

8.52.030 Dry cleaning license—Application.

The application for license to engage in the business of cleaning and blocking of hats or the cleaning or pressing of clothing or other materials or fabrics shall be made to the License Collector in writing and shall state, among other things, the following:

A. The name and address of the applicant, the address or addresses of the place or places of business of applicant;

B. The number of pressing or cleaning machines placed or to be placed in the establishment;

C. The gross sales or receipts received by the applicant from cleaning or pressing of clothing or other materials or fabrics or the cleaning or blocking of hats for the preceding calendar year;

D. Other information prescribed by the License Collector.

Should the applicant not have been engaged in such business in the preceding calendar year, the applicant shall so state. (1948 C., Ch. 35, § 3; 1960 C., § 622.020; 1994 C., § 8.52.030; Ord. No. 48920, § 1(part), 1958.)

City Counselor Ops.: 8646

8.52.050 Dry cleaning license—Display.

The certificate of the license required by this chapter shall be conspicuously displayed in the place of business of the licensee. (1948 C., Ch. 35, § 5; 1960 C., § 622.040; 1994 C., § 8.52.050.)

8.52.060 Qualified attendant required.

Each dry cleaning plant establishment shall have a qualified attendant on the premises at all times that the establishment may be open for business to the public.

Any person, firm, owner, operator or agent who shall violate or fail to comply with the requirement of this section shall be deemed guilty of a misdemeanor, and shall upon conviction be fined not less than one dollar nor more than five hundred dollars. (1948 C., Ch. 13, §§ 105(1), 106; 1960 C., §§ 663.010, 663.030; 1994 C., § 8.52.060; Ord. No. 50487, § 1(part), 1961.)

8.52.070 Laundry defined.

"Laundry," when used in this chapter, means any place, building, structure, room, establishment or portion thereof, which is used for the purpose of washing, drying, starching or ironing shirts, dresses, underwear, collars, cuffs or other wearing apparel, table, bed or other household linens, towels, curtains, draperies or other washable fabrics, when such work is being done for the general public.

It shall also include any laundry sales station as defined in Section 8.52.100 and any place where any self-service machine is rented for compensation for the laundering, drying or dry cleaning of clothing, materials or fabrics on a time or per load basis within the City.

Sections 8.52.070—8.52.110 shall not apply to any female engaged in doing custom laundry work at her home for a regular family trade, nor to any room or portion thereof, located in a tenement house or other dwelling, in which domestic laundry work is done by or for the occupants of the building exclusively. (1948 C., Ch. 35, § 6; 1960 C., § 621.010; 1994 C., § 8.52.070; Ord. No. 48920, § 1(part), 1958.)

City Counselor Ops.: 8646

8.52.080 Laundry license—Required.

No person shall conduct, operate, maintain or carry on the business of a laundry within the City limits without first obtaining a license. (1948 C., Ch. 35, § 7; 1960 C., § 621.020; 1994 C., § 8.52.080.)

McQuillin:

26.122 Laundries and dry cleaners

8.52.090 Laundry license—Application.

The application for a license to conduct a laundry shall be made in writing and shall state, among other things: the name and address of the applicant, the number of laundry sales stations operated by the applicant, the number of self service machines operated by him for use on a rental basis, the name and address of his establishment where laundry work is performed, the gross receipts or sales received by the applicant for the preceding calendar year and any other information prescribed by the License Collector. Should the applicant not have been engaged in such business in the preceding year, the applicant shall so state. (1948 C., Ch. 35, § 8; 1960 C., § 621.030; 1994 C., § 8.52.090; Ord. No. 48920, § 1(part), 1958.)

City Counselor Ops.: 8646

8.52.110 Laundry license—Display.

Each license issued under the provisions of Sections 8.52.070—8.52.110 shall be displayed in a conspicuous place in the shop of the licensee. (1948 C., Ch. 35, § 10; 1960 C., § 621.050; 1994 C., § 8.52.110.)

Chapter 8.54

MANUFACTURERS

For tax credit for drummer, solicitor, or canvasser employer, see § 8.06.452.

City Counselor Ops.: 8104, 8846

Sections:

8.54.010 Defined.
8.54.020 Ad valorem tax.
8.54.040 License—Fee—Payment.
8.54.050 License—Blanks—Form.
8.54.060 License—Blanks—Stubs.

8.54.070 Statement—Required.
8.54.080 Statement—Delinquent—Penalty.
8.54.090 Statement—False—Misdemeanor.
8.54.100 Statement—False—Penalty.
8.54.110 Statement—Confidential—Inspection.
8.54.120 Failure to file statements and pay fees.
8.54.130 Penalty for failure to pay fees and taxes.
8.54.140 New manufacturers.
8.54.150 Manufacturer account books.
8.54.160 Permit required for certain products.
8.54.170 Publication of chapter.
8.54.180 Enforcement.

8.54.010 Defined.

Every person who shall hold or purchase personal property for the purpose of adding to the value thereof by any process of manufacturing, refining or by the combination of different materials in the City, shall be held to be a manufacturer for the purpose of this chapter, except as is or may be otherwise provided by ordinance. (1948 C., Ch. 13, § 27; 1960 C., § 147.010; 1994 C., § 8.54.010.)

City Counselor Ops.: 8543, 9096

Cases:

Shoe manufacturer held not within St. Louis ordinance defining manufacture with respect to shoes manufactured in other cities and transferred to warehouse in St. Louis for distribution in St. Louis. *State v. Chapman,* 276 S.W. 32 (1925).

8.54.020 Ad valorem tax.

In addition to the license, there shall be levied and collected on the value of the raw materials, merchandise and finished product, tools, and machinery, and appliances contained in the statement provided for in Section 8.54.070 an annual ad valorem City tax at the same rate as is required by ordinance for the taxing of merchants, within the several districts of the City. This tax shall be paid to the License Collector, on or before the first Monday in September of each year. (1948 C., Ch. 13, § 28; 1960 C., § 147.020; 1994 C., § 8.54.020.)

Charter:

Art. XXV § 2 Taxation of raw materials and finished products, tools, machinery, and sales

RSMo:

RSMo 92.040 (2016) Taxation and licensing of merchants and manufacturers by certain cities

RSMo 150.300 et seq. (2016) Taxation of manufacturers, generally

Cases:

"Work in process" held subject to merchants' and manufacturers' tax under the category "raw material" as that term is used in RSMo Ch.150(1969). *Mesker Bros. Industries v. Leachman,* 529 S.W. 2d 153 (1975).

8.54.040 License—Fee—Payment.

The amount of tax and license due shall be paid by the manufacturer to the License Collector, at his office, on or before the first Monday in September in each year. (1948 C., Ch. 13, § 29(part); 1960 C., § 147.030; 1994 C., § 8.54.040.)

8.54.050 License—Blanks—Form.

It shall be the duty of the Comptroller to furnish the License Collector with blank licenses, which license shall be charged to the License Collector, and his receipt taken therefor.

This license shall be in the following form:

No. ____ manufacturers' city license. The City of St. Louis: To all who shall see these presents, greeting: Know ye that _____ have paid _____, license collector of the City of St. Louis, the sum of _____ dollars, being the license tax upon _____ as manufacturer; therefore, the said _____ is hereby authorized to manufacture the following articles, viz.: _____ except as otherwise provided by ordinance, at any one place of business within the city for the year ending on the first Monday of July, 20, and to sell and dispose of such articles so manufactured at the same place, or any other one place in the city. In testimony whereof, I _____, comptroller of the City of St. Louis, have hereunto set my hand this _____ day of _____, 20____,—comptroller. Attest: _____, register. Tax _____, license _____, delivered this _____ day of _____, 20____,—license collector. (1948 C., Ch. 13, § 32; 1960 C., § 147.070; 1994 C., § 8.54.050.)

8.54.060 License—Blanks—Stubs.

The blank licenses provided for in Section 8.54.050 shall be bound in book form with suitable margins or stubs, on which shall be made and entered the sworn statements required by this chapter. There shall also be entered upon the margins or stubs the amount of tax and license collected in accordance with the statement so made. These margins or stubs shall be returned, with the License Collector's statement of the items and aggregate amount collected, to the Comptroller, who shall examine and compare them and charge the aggregate amount collected to the License Collector. (1948 C., Ch. 13, § 33; 1960 C., § 147.080; 1994 C., § 8.54.060.)

8.54.070 Statement—Required.

The License Collector or his deputies shall, after the first Monday in January and before the first Monday in July in each year, call on every person defined by this chapter to be a manufacturer, and notify him to furnish, and it shall be the duty of such person, whether so notified or not, to furnish to the License Collector:

A. A statement of the greatest amount of raw material and finished products, which he may have had on hand at any one time between the first Monday in January and the first Monday in April in each year, as well as all the tools, machinery and appliances used by him;

B. A statement of the aggregate amount of all sales, and a value of the goods manufactured or produced in St. Louis and not included in the amount reported as sales, made by the manufacturer during the year next preceding the first Monday of June, the statements shall be made in writing and delivered to the License Collector, verified by the affidavit of the manufacturer or officer of the corporation making it, if residing in the City, or if not, then by some credible person authorized to do so. (1948 C., Ch. 13, § 30; 1960 C., § 147.050; Ord. No. 55082, § 1, 1968; 1994 C., § 8.54.070.)

City Counselor Ops.: 8331, 9071

8.54.080 Statement—Delinquent—Penalty.

In addition to the other penalties provided by law or by this chapter, any manufacturer who shall fail to file his tax statement on or before the first day of July each year, shall pay to the License Collector a penalty of five percent per month of the tax determined to be due from the manufacturer for each calendar month or fraction thereof until the return is filed as provided. The License Collector upon receipt of a statement from a manufacturer shall record the date on which the statement was received. The License Collector shall assess, levy and collect the penalty against the manufacturer before issuing the manufacturer's license. (1948 C., Ch. 13, § 36; 1960 C., § 147.110(part); 1994 C., § 8.54.080; Ord. No. 54451, § 1(part), 1966.)

City Counselor Ops.: 9459, 9603

8.54.090 Statement—False—Misdemeanor.

Whoever shall make or file with the License Collector, under the provisions of this chapter, a false statement under oath, shall be guilty of a misdemeanor. (1948 C., Ch. 13, § 39; 1960 C., § 147.140; 1994 C., § 8.54.090.)

City Counselor Ops.: 9603

8.54.100 Statement—False—Penalty.

In addition to the penalties provided by law or by this chapter, any manufacturer who shall file a false, untrue or fraudulent statement shall be assessed and pay a penalty of fifty percent of the tax determined to be due. Before the penalty shall be levied, and collected by the License Collector, the Board of Merchants and Manufacturers Tax Equalization shall notify the manufacturer of the time and place of a hearing thereon at least seven days in advance of the hearing by registered mail to the address contained in the statement. At the time and the date as set forth in the notice, a hearing thereon shall be held before the Board to determine whether the statement is false, fraudulent or untrue. Should the Board determine the statement is false, fraudulent or untrue, it shall notify the manufacturer and the License Collector of the fact in writing and the License Collector thereafter shall assess, levy and collect a fifty percent penalty of the tax due against the manufacturer before issuing the license. (1948 C., Ch. 13, § 36; 1960 C., § 147.110(part); 1994 C., § 8.54.100; Ord. No. 54451, § 1(part), 1966.)

8.54.110 Statement—Confidential—Inspection.

The statements or returns made to the License Collector under the requirements of this chapter shall not be made public, nor shall they be subject to the inspection of any person except the Mayor, Comptroller and members of the Board of Aldermen. (1948 C., Ch. 13, § 38; 1960 C., § 147.130; 1994 C., § 8.54.110.)

8.54.120 Failure to file statements and pay fees.

In case any manufacturer shall fail, neglect or refuse to deliver the statements herein required on or before the first Monday of July, or pay the license and

tax levied by this chapter on or before December 31 of each year, he shall be guilty of a misdemeanor. (1948 C., Ch. 13, § 35; 1960 C., § 147.100; 1994 C., § 8.54.120.)

8.54.130 Penalty for failure to pay fees and taxes.

All taxes and fees due for the payment of manufacturers licenses remaining unpaid after December 31 shall bear interest at the rate of one percent per month or fraction thereof. In addition thereto, any taxpayer failing to pay any manufacturers tax or license fee by December 31 shall be liable for a penalty of five percent of the amount of the unpaid tax or license fee for each month or fraction of a month during which the failure to pay continues, with the penalty not to exceed twenty-five percent of the total tax determined to be due. It is hereby expressly provided that the aforementioned interest and penalty shall not apply if a final determination of the amount of the manufacturers license tax and/or fee has not been made by the Board of Merchants and Manufacturers Tax Equalization by December 31. In that event, however, any amount so due shall bear interest at the rate of one percent per month or fraction thereof beginning thirty days after the final determination of the amount of the tax or fee has been made by the Board of Merchants and Manufacturers Tax Equalization. Also in that event, the penalty of five percent of the amount of the unpaid tax or fee for each month or fraction of a month during which the failure to pay continues shall begin thirty days after the final determination of the amount so due has been made by the Board of Merchants and Manufacturers Tax Equalization. The Comptroller is authorized to promulgate rules and regulations not inconsistent with the rules of this section to ensure full and proper compliance. (1994 C., § 8.54.130; Ord. No. 56986, § 1, 1975.)

8.54.140 New manufacturers.

When any manufacturer shall commence the business of manufacturing in the City after the first day of January in any year, he shall take out a manufacturer's license therefor. It shall be his duty to file with the License Collector a statement estimating the highest amount of raw material, finished products, tools, machinery and appliances which he will have on hand or subject to his control at any one time prior to the first day of January next succeeding, and to pay to the license Collector a tax on a pro rata basis. (1948 C., Ch. 13, § 34; 1960 C., § 147.090; 1994 C., § 8.54.140.)

8.54.150 Manufacturer account books.

It shall be the duty of each manufacturer to keep an account book, with entries in ink, of all sales made by him. These accounts shall always be open to the inspection of the License Collector to verify the returns made to him. (1948 C., Ch. 13, § 37; 1960 C., § 147.120; 1994 C., § 8.54.150.)

8.54.160 Permit required for certain products.

It shall be unlawful, without first obtaining a permit from the Board of Public Service, to manufacture or produce any article, the manufacture of which is injurious to the public health or in the manufacture of which an offensive odor is emitted to the extent of creating a nuisance to the adjoining inhabitants. (1948 C., Ch. 13, § 40; 1960 C., § 536.100; 1994 C., § 8.54.160.)

8.54.170 Publication of chapter.

It shall be the duty of the License Collector, when so directed by the Comptroller, to give notice by publication in the papers doing the City printing of any of the provisions or requirements of this chapter. (1948 C., Ch. 13, § 29(part); 1960 C., § 147.040; 1994 C., § 8.54.170.)

8.54.180 Enforcement.

It shall be the duty of the License Collector to carefully examine all statements filed with him, and to prosecute all violations of this chapter, according to law. Before instituting any prosecution, he shall give the manufacturer an opportunity of explaining his statement and of correcting it, if inadvertently made. If it shall appear to the License Collector that a false statement was willfully and corruptly made, he shall report all the facts to the Grand Jury. (1948 C., Ch. 13, § 41; 1960 C., § 147.150; 1994 C., § 8.54.180.)

City Counselor Ops.: 9459, 9603

Chapter 8.55

MASSAGE THERAPISTS AND MASSAGE FACILITIES

Sections:

8.55.010 Definitions.
8.55.020 Massage therapist business license.
8.55.030 Massage facility business license required.
8.55.040 No transfer of license.
8.55.050 Operating regulations.
8.55.060 Advertising.

8.55.070 Inspections, immediate right of entry.
8.55.080 Suspension/revocation and promulgation of rules.
8.55.090 Therapeutic massage schools.
8.55.100 Renewal of licenses.
8.55.110 Persons under age 18.

8.55.010 Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

A. "Massage therapy" shall mean a health care profession which involves the treatment of the body's tonus system through the scientific or skillful touching, rubbing, pressing or other movements of the soft tissues of the body with the hands, forearms, elbows, or feet, or with the aid of mechanical apparatus, for relaxation, therapeutic, remedial or health maintenance purposes to enhance the mental and physical well-being of the client, but does not include the prescription of medication, spinal or joint manipulation, the diagnosis of illness or disease, or any service or procedure for which a license to practice medicine, chiropractic, physical therapy, or podiatry is required by law, or to those occupations defined in RSMo 329.

B. "Massage business or facility" shall mean an establishment where any person performs massage or permits massage therapy to be performed for compensation. The operator of a massage business or facility must obtain a massage facility business license pursuant to Section 8.55.030.

C. "Massage therapist" shall mean a person who has completed all requirements of this chapter for a massage therapist business license in order to practice massage within the City. Upon receipt of a massage therapist business license from the License Collector of the City, a massage therapist may perform massage for compensation, but only at a licensed massage facility.

D. "Patron" shall mean any person who receives massage subject to the provisions of this chapter under circumstances wherein it is reasonably expected that the patron will pay money or give any other consideration therefore.

E. "Sexual or genital areas" shall mean the genitals, pubic area, anus or perineum of any person, and the vulva or breasts of a female. (1994 C., § 8.55.010; Ord. No. 68327, § 1, 4-22-2009.)

8.55.020 Massage therapist business license.

It shall be unlawful for any person to perform massage for compensation within the City without first obtaining a massage therapist business license, pursuant to this chapter. A complete application shall be submitted to the Board of Public Service.

A. *License Application.* An applicant for a massage therapist business license must furnish the Board of Public Service with a valid photo identification issued by an agency of either the State of Missouri or the United States of America, and an original or certified copy of the massage therapy certificate/license issued to the applicant by the Missouri Department of Economic Development, Division of Professional Registration, Missouri State Board of Therapeutic Massage, and the full license fee established by Section 8.55.030.

B. *Application Review.* The Board of Public Service shall obtain confirmation from the Missouri Department of Economic Development, Division of Professional Registration, Missouri State Board of Therapeutic Massage that the certificate/license presented by the applicant is not under suspension or revocation, and remains in good standing.

C. *Display of License/Limitations on Off-Premises Massage.* The massage therapist business license shall be displayed at all times by the licensee openly and conspicuously on the premises of the massage facility where the massage is performed.

D. *Exemptions.* Practitioners who are exempt from the provisions of the Missouri Massage Therapy licensing law, RSMo 324.240 et seq., shall not be required to obtain a massage therapist business license under the provisions of this chapter. (1994 C., § 8.55.020; Ord. No. 68327, § 2, 4-22-2009.)

8.55.030 Massage facility business license required.

A. It shall be unlawful for any person to operate or maintain a massage facility in the City without first obtaining a massage facility business license pursuant to this chapter. A complete application shall be submitted to the Board of Public Service. The massage facility business license shall be in addition to any other business license, including any massage therapist business license, required the owner or operator of the massage facility.

B. License. An applicant for a massage facility business license must furnish the Board of Public Service with the original massage business license issued to

the applicant by the Missouri Department of Economic Development, Division of Professional Registration, Missouri State Board of Therapeutic Massage and a fee of one hundred dollars ($100.00) for each massage facility.

C. Application Review. The Board of Public Service shall obtain confirmation from the Missouri Department of Economic Development, Division of Professional Registration, Missouri State Board of Therapeutic Massage that the massage business license presented by the applicant is not under suspension or revocation, and remains in good standing. Approval by the Board of Public Service of a massage facility business license shall also be contingent on the following:

1. Location of Facility. The massage facility shall comply with the City's Zoning Code.

2. Location in Hotel or Motel. The massage facility may be located in a hotel or motel only in a space specifically designated and dedicated for that purpose by responsible and identifiable hotel or motel management. The space so designated and dedicated shall be used solely for massage services and for no other purpose at any time.

3. Inspection by the Department of Health and regulations. No massage facility business license shall be approved by the Board of Public Service unless the Director of the City's Department of Health Department or his/her designee certifies to the Board of Public Service that the massage facility complies with all applicable health and safety laws, and any regulations as promulgated by the Director of the Department of Health.

D. The massage facility business license shall be displayed at all times by the licensee openly and conspicuously on the premises of the massage facility where the massage is performed.

E. Responsibility of License Holder. The holder of a massage facility business license may hire or contract with massage therapists holding valid massage therapist business licenses from the City to perform massage at the facility for compensation. Massage facility business licensees are at all times responsible for any act or conduct in violation of this chapter of any massage therapist on the massage facility premises.

F. Nothing contained in this section shall be construed to eliminate other requirements of statute, regulation or ordinance concerning the maintenance of such premises, nor preclude authorized inspection thereof. (1994 C., § 8.55.030; Ord. No. 68327, § 3, 4-22-2009.)

8.55.040 No transfer of license.

A. Massage facility licenses and massage therapist business licenses are not transferable and such authority as a license confers shall be conferred only on the location or person identified therein.

B. Fees paid and licenses obtained pursuant to this chapter shall be in addition to and not in lieu of any other fees or licenses required to be paid or obtained pursuant to this chapter or any other ordinances of this City. (1994 C., § 8.55.040; Ord. No. 68327, § 4, 4-22-2009.)

8.55.050 Operating regulations.

Operation of a massage facility shall be subject to the following regulations:

1. *Hours.* The facility shall be closed and operations shall cease between the hours of 12:00 midnight and 6:00 a.m. each day.

2. *Separation of Sexes.* It shall be unlawful for patrons of opposite sex to receive massage in the same room at the same time.

3. *Danger to Safety, Health.* No massage therapy shall be provided which in the opinion of the Health Department would impair the safety or health of any person and after such notice in writing to the licensee from such Health Department official.

4. *Alcoholic Beverages.* No intoxicating liquor or non-intoxicating beer, nor the consumption thereof, shall be permitted on any premises licensed pursuant to this chapter.

5. *Conduct on Premises.* All persons holding a massage facility business license shall at all times be responsible for the conduct of business on the licensed premises, and for any act or conduct of any massage therapist utilizing the facility which constitutes a violation of the provisions in this chapter. Any violation of City, state or federal laws committed on the licensed premises by any such holder of a massage facility business license, holder of a massage therapist business license, or employee of the facility that affects the eligibility or suitability of such person to hold a license, may be grounds for suspension or revocation of the business license.

6. *Sanitation of Premises.* All portions of a licensed facility, including appliances, shall be kept clean and operated in a sanitary condition.

7. *Sanitation of Massage Therapists and Employees.* All massage therapists shall be clean and wear clean clothes. Provisions for a separate massage therapist/employee dressing room for each sex must be available on the premises with individual lockers for each massage therapist and employee. Doors to such dressing rooms shall open inward.

8. *Dress of Massage Therapists and Employees.* At all times all massage therapists and employees must be fully and modestly dressed in opaque attire that does not expose to view any sexual or genital areas.

9. *Dress of Patrons.* The sexual and genital areas of a patron must be covered by towels, cloths or undergarments when the patron is in the presence of a massage therapist or employee. Any contact with a patron's sexual or genital areas is strictly prohibited.

10. *Laundry.* All sheets and towels provided patrons in massage facilities shall be clean and laundered after each use and stored in a sanitary manner.

11. *Cleaning Premises.* Wet and dry heat rooms, shower compartments and toilet rooms shall be thoroughly cleaned each day the facility is in operation. Bathtubs shall be thoroughly cleaned after each use. (1994 C., § 8.55.050; Ord. No. 68327, § 5, 4-22-2009.)

8.55.060 Advertising.

No massage therapist or massage facility operator licensed pursuant to this chapter shall place, publish or distribute or cause to be placed, published or distributed any advertising matter pertaining to massage that would reasonably suggest to prospective patrons that any service is available other than massage as defined in and regulated by this Division; or that massage therapists or employees are dressed in any manner other than required by this chapter. (1994 C., § 8.55.060; Ord. No. 68327, § 6, 4-22-2009.)

8.55.070 Inspections, immediate right of entry.

The St. Louis Police Department and the Department of Health officials may from time to time inspect a licensed massage facility to determine compliance with any provisions of this chapter.

It shall be unlawful for any person holding a massage facility business license, a massage therapist business license or an employee of such licensee to refuse such inspection officer immediate access to the premises or to hinder such officer in any manner; such refusal or hindrance on the part of any license holder or employee shall be grounds for the immediate revocation or suspension of any relevant massage therapist or massage facility business license. (1994 C., § 8.55.070; Ord. No. 68327, § 7, 4-22-2009.)

8.55.080 Suspension/revocation and promulgation of rules.

A. Whenever a majority of the persons, if any, owning property, and a majority of persons, if any, occupying premises or conducting any business on the main surface floor of premises within a prescribed petition circle drawn by a radius of three hundred feet plus one-half of the width of the front of the arcade from the center of the premises projected to the street, shall sign and thereafter file a written petition before the Board of Public Service demanding the revocation of the license which has been issued in accordance with this chapter, the license shall be revoked and be held null and void if a majority of the Board of Public Service finds that the petition is in the form prescribed in this section.

B. In addition to the revocation by neighborhood petition, a majority of the Board of Public Service may suspend any or all of a licensee's licenses for a period of not more than thirty days or any portion thereof, or may revoke any or all of a licensee's licenses issued in accordance with this chapter whenever it is found that the licensee has obtained any license through misrepresentation or fraud or that the licensee has disregarded or violated any of the regulations or laws pertaining to massage therapy. The licensee shall be notified in writing of the charges or infractions. These shall be mailed to the licensee at the address of any of his licensed premises or at the last known residence of the licensee. A public hearing shall be held before the Board of Public Service at a specified time. At the hearing, evidence under oath shall be heard concerning the charges or infractions and the licensee or his attorney may present evidence in answer to defense thereto. Evidence of infractions or violations other than those specified in writing to the licensee may also be presented at the hearing; provided, however, that the licensee shall be given reasonable additional time, if he or she so requests, to prepare his answer or defense to such additional infractions or violations. The Board of Public Service shall render a decision within fourteen days after completion of the formal hearing and shall mail a copy of its decision to the licensee. Appeals from the decision of the Board of Public Service may be taken by the licensee as provided by law. Any person whose

license has been revoked shall not again be allowed to obtain a license issued by this chapter for one year thereafter.

C. A massage therapist whose massage therapist business license is suspended or revoked shall immediately surrender to the Board of Public Service the permit associated with the license.

D. The Board of Public Service is authorized to adopt all necessary forms and to enact, promulgate and enforce all rules and regulations necessary for the reasonable interpretation and enforcement of this chapter. (1994 C., § 8.55.080; Ord. No. 68327, § 8, 4-22-2009.)

8.55.090 Therapeutic massage schools.

A. A school offering massage training must first obtain a Certificate to Operate as a therapeutic massage school from the Missouri Department of Higher Education. Any student of such school may perform massage as part of the curriculum training, provided that:

1. The student does not represent himself or herself as a licensed massage therapist;

2. Neither the student nor an instructor receives compensation for the massage; and

3. Any massage a student performs is personally supervised by a qualified school instructor.

B. Any such school shall prominently display a Missouri Department of Higher Education Certificate to Operate as such.

C. Therapeutic massage schools shall comply with all zoning regulations. (1994 C., § 8.55.090; Ord. No. 68327, § 9, 4-22-2009.)

8.55.100 Renewal of licenses.

A. Massage facility and massage therapist business licenses shall be issued annually. The first license shall be effective upon approval, and expire one year from date of issuance.

B. Renewal applications must be received by the Board of Public Service no later than thirty (30) days prior to expiration. Applications to renew a massage therapist business or massage facility business license shall satisfy the requirements of an original application and, in the case of an application to renew a massage therapist business license, be accompanied by confirmation from the Missouri Department of Economic Development, Division of Professional Registration, Missouri State Board of Therapeutic Massage that the certificate/license presented by the applicant is not under suspension or revocation, and remains in good standing.

C. If any renewal application contains information that, in the Board of Public Service's opinion, does not warrant renewal or if other information known to the Board of Public Service indicates that renewal is not warranted, the Board of Public Service shall notify the applicant in writing, mailed by regular mail to the applicant at the address on the renewal application, that the license renewal application is denied. In that case applicant may contact the Board of Public Service that applicant desires a public hearing before the Board of Public Service. So notified, the Board of Public Service shall schedule the hearing and the Board of Public Service shall decide the matter. (1994 C., § 8.55.100; Ord. No. 68327, § 10, 4-22-2009.)

8.55.110 Persons under age 18.

A. No person shall permit any person under the age of eighteen (18) years to come or remain on the premises of a massage facility as a massage therapist or employee of a massage therapist or massage facility.

B. A person under the age of eighteen (18) years may be a patron of a massage therapist only if, while at all times as a patron, the person possesses written, signed consent of a custodial parent or legal guardian. (1994 C., § 8.55.110; Ord. No. 68327, § 11, 4-22-2009.)

Chapter 8.56

MERCHANTS

For tax credit for drummer, solicitor, or canvasser employer, see § 8.06.452.

City Counselor Ops.: 8104

Sections:

8.56.010 Merchant defined.
8.56.020 New merchants.
8.56.030 Compliance.
8.56.040 Account books.
8.56.050 Statement—Required.
8.56.060 Statement—Delinquent.
8.56.070 Statement—False—Penalty.
8.56.080 Statement—False—Misdemeanor.
8.56.090 Statement—Confidential.
8.56.100 Ad valorem tax—Levied.
8.56.110 Ad valorem tax—Payment.
8.56.120 Ad valorem tax—Deposits.

8.56.130 License—Required.
8.56.140 License—Nonassignable.
8.56.160 License—Blanks—Form.
8.56.170 License—Blanks—Stubs.
8.56.180 Taxes and fees—Delinquent.
8.56.190 Taxes and fees—Uses.
8.56.200 Enforcement.

8.56.010 Merchant defined.

Whoever shall deal in the selling of any goods, wares or merchandise at any store, stand or place occupied for that purpose within the City, or at the merchants' exchange, is hereby declared to be a merchant, except as is or may be otherwise provided by ordinance. (1948 C., Ch. 13, § 42; 1960 C., § 146.010; 1994 C., § 8.56.010.)

City Counselor Ops.: 7612, 7923, 8587, 8699, 8790, 8821, 8995, 9106, 10077

Cases:

Under charter provision, city could classify merchants for license tax purposes. *Automobile Gasoline Co. v. City of St. Louis,* 32 W. 2d 281 (1930).

8.56.020 New merchants.

When any merchant shall commence business in the City after January 1 in any year, he shall take out a merchant's license therefor. It shall be his duty to file with the License Collector a statement estimating the highest amount of goods, wares and merchandise which he will have on hand or subject to his control, whether owned by himself or consigned to him for sale at any one time prior to the first day of January next succeeding. The merchant shall pay to the License Collector a tax on a prorated basis. (1948 C., Ch. 13, § 43; 1960 C., § 146.020; 1994 C., § 8.56.020.)

Cases:

Ordinances defining the term "merchant" and requiring every merchant to procure a license were valid. *State v. Mathews,* 162 S.W. 2d 352 (1942).

8.56.030 Compliance.

In case any merchant shall fail, neglect or refuse to deliver the statement required and pay the tax and license levied by this chapter on or before the first Monday of September in each year, he shall be deemed guilty of a misdemeanor. (1948 C., Ch. 13, § 44; 1960 C., § 146.030; 1994 C., § 8.56.030.)

Editor's Note:

Ordinance 54452 purports to repeal and reenact 1960 C. § 146.030 when instead it was meant to repeal and reenact 1960 C. § 146.040. For this reason 1960 C. § 146.030 has been codified in its 1948 Code form and 1960 C. § 146.040 has been codified as though it was repealed and reenacted by Ordinance 54452 with the 1948 Code form of 1960 C. § 146.040 following:

Sec. 45. Duties of license collector in case of delinquent merchant.

In addition to the penalty provided for in the immediately previous section, the license collector shall assess the goods, wares, merchandise and aggregate amount of sales of such delinquent merchant at double their value, to be ascertained by the best information he can obtain. He shall also report the delinquent to the city counselor. (Ord. No. 43544.) For 1960 C. § 146.040 as now codified, see §§ 8.56.060 and 8.56.070

8.56.040 Account books.

It shall be the duty of each merchant to keep an account book, with entries in ink, of all sales made by him. This account book shall always be open to the inspection of the License Collector to verify the returns made by him. (1948 C., Ch. 13, § 46(part); 1960 C., § 146.050; 1994 C., § 8.56.040.)

City Counselor Ops.: 9393

Cases:

Validity of ordinance requiring merchants to keep accounts of their sales for inspection by city license inspector to verify merchant's license returns was upheld. *City of St. Louis v. Bouckaert,* 185 S.W. 2d 886 (1945).

8.56.050 Statement—Required.

The License Collector or his deputies shall, after the first Monday in January and before the first Monday in July in each year, call on each merchant, and notify him to furnish, and it shall be the duty of the person whether so notified or not to furnish, the License Collector with the following information:

A. A statement of the value of the largest amount of all goods, wares and merchandise which he may have had in his possession or under his control at any time between the first Monday of January and the first Monday of April in each year;

B. A statement of the aggregate amount of all sales made by him during the year next preceding the first Monday of June, which statement shall be made in writing and delivered to the License Collector, verified by the affidavit of the merchant or officer of the corporation making it, if residing in the City, and if not,

then by some credible person duly authorized to do so. (1948 C., Ch. 13, § 48; 1960 C., § 146.080; 1994 C., § 8.56.050.)

RSMo:

RSMo 150.090 (2016) Merchant taxation and collection in St. Louis city

City Counselor Ops.: 7647, 8430, 8806

8.56.060 Statement—Delinquent.

In addition to the other penalties provided by law or by this chapter, any merchant who shall fail to file his tax statement on or before the first day of July each year, shall pay to the License Collector a penalty of five percent per month of the tax determined to be due from the merchant for each calendar month or fraction thereof until the return is filed as herein provided. The License Collector upon receipt of a statement from a merchant shall record the date on which the statement was received. The License Collector shall assess, levy and collect the penalty against the merchant before issuing the merchant's license. (1948 C., Ch. 13, § 45; 1960 C., § 146.040(part); 1994 C., § 8.56.060; Ord. No. 54452, § 1(part), 1966.)

Editor's Note:

See editor's note under § 8.56.030

City Counselor Ops.: 9106, 9459

8.56.070 Statement—False—Penalty.

In addition to the penalties provided by law or by this chapter, any merchant who shall file a false, untrue or fraudulent statement shall be assessed and pay a penalty of fifty percent of the tax determined to be due. Before the penalty shall be levied, and collected by the License Collector, the Board of Merchants and Manufacturers Tax Equalization shall notify the merchant of the time and place of a hearing thereon at least seven days in advance of the hearing by registered mail to the address contained in the statement. At the time and the date as set forth in the notice, a hearing thereon shall be held before the Board to determine whether the statement is false, fraudulent or untrue. Should the Board determine the statement is false, fraudulent or untrue, it shall notify the merchant and the License Collector of the fact in writing and the License Collector thereafter shall assess, levy and collect a fifty percent penalty of the tax due against the merchant before issuing the license. (1948 C., Ch. 13, § 45; 1960 C., § 146.040(part); 1994 C., § 8.56.070; Ord. No. 54452, § 1(part), 1966.)

Editor's Note:

See editor's note under § 8.56.030

City Counselor Ops.: 9106, 9459

8.56.080 Statement—False—Misdemeanor.

Whoever shall make or file with the License Collector, under the provisions of this article, a false statement under oath, shall be guilty of a misdemeanor. (1948 C., Ch. 13, § 56; 1960 C., § 146.160; 1994 C., § 8.56.080.)

8.56.090 Statement—Confidential.

The statements or returns made to the License Collector under the requirements of this chapter shall not be made public nor shall they be subject to the inspection of any person except the Mayor, Comptroller and members of the Board of Aldermen. (1948 C., Ch. 13, § 46(part); 1960 C., § 146.060; 1994 C., § 8.56.090.)

8.56.100 Ad valorem tax—Levied.

There shall be levied and collected on the value of the largest amount of all goods, wares and merchandise reported, as required by Section 8.56.050, an ad valorem tax of seventy-eight hundredths of one percent of the value of all such goods, wares and merchandise, situated within the limits of the City. (1948 C., Ch. 13, § 49; 1960 C., § 146.090; 1994 C., § 8.56.100; Ord. No. 48431, § 1, 1957; Ord. No. 46759, § 2, 1953; Ord. No. 44879, § 1(part), 1949.)

Charter:

Art. XXV § 2 Taxation of raw materials and finished products, tools, machinery, and sales

RSMo:

RSMo 92.040 (2016) Taxation and licensing of merchants and manufacturers by certain cities

RSMo 150.010 et seq. (2016) Taxation of merchants, generally

City Counselor Ops.: 8430, 9106

Cases:

Gross receipts from sales were subject to Kansas City business license tax even though purchaser was outside city boundaries and the goods never came into the city, where business had an office in the city and where incidents relating to the sales occurred in the city. *Kansas City v. Graybar* 485 S.W. 2d 38 (1972).

City merchant's license fee, which required every merchant to pay a license fee at the rate of $2.00 on each $1,000 or fraction thereof of sales made but not less than $20, was a sales tax; however, a state law that required voter approval of sales tax issues did not apply to the merchant's license fee because the ordinance imposing the fee was passed prior to the state law. *Ernie Patti Oldsmobile, Inc. v. Boykins,* 803 S.W.2d 106 (Mo.App. 1990).

Merchant's license fee did not violate Article 10, Section 3, of the Missouri Constitution or the Equal Protection

Clause of the Fourteenth Amendment of the United States Constitution. *Ernie Patti Oldsmobile, Inc. v. Boykins,* 803 S.W.2d 106 (Mo.App. 1990).

8.56.110 Ad valorem tax—Payment.

The ad valorem tax shall be paid to the License Collector on or before the first Monday of September in each year, except in cases of merchants and manufacturers who have been cited by the Board of Merchant's and Manufacturer's Tax Equalization to show cause why their returns of the values of inventories should not be increased. (1948 C., Ch. 13, § 50; 1960 C., § 146.100; 1994 C., § 8.56.110; Ord. No. 46201, § 1, 1952; Ord. No. 44879, § 1(part), 1949.)

8.56.120 Ad valorem tax—Deposits.

The ad valorem taxes and taxes on sales levied and collected pursuant to this chapter shall be deposited to the credit of the City of St. Louis convention, exhibition and community center building revenue fund established by Section 5.36.010 (hereinafter called the "revenue fund"). The Comptroller shall disburse from the revenue fund to the City of St. Louis convention, exhibition and community center building bond service fund and the City of St. Louis convention, exhibition and community center building bond reserve fund established by Ordinance No. 56262 the amounts required to be paid in such funds in accordance with the ordinance authorizing the issuance of convention, exhibition and community center revenue bonds. The amount remaining in the revenue fund after the disbursements required to be made in the previous sentence shall be transferred to general revenue. (1960 C., § 146.075; 1994 C., § 8.56.120; Ord. No. 56264, § 1, 1972.)

8.56.130 License—Required.

Every merchant shall, before doing or offering to do business, procure a license therefor from the License Collector under the provisions of this chapter. If he shall, within the City, sell or offer for sale any goods, wares or merchandise, without first complying with the provisions of this chapter, or shall otherwise violate or fail to comply with any of the provisions of this chapter, he shall be deemed guilty of a misdemeanor. (1948 C., Ch. 13, § 52; 1960 C., § 146.120; 1994 C., § 8.56.130.)

McQuillin:

26.140 et seq. Merchants and dealers

8.56.140 License—Nonassignable.

No license issued under the provisions of this chapter shall be assignable or transferable. (1948 C., Ch. 13, § 53; 1960 C., § 146.130; 1994 C., § 8.56.140.)

8.56.160 License—Blanks—Form.

It shall be the duty of the Comptroller to furnish the License Collector with all blank licenses, which licenses shall be charged to the License Collector and his receipt taken therefor. These licenses shall be in the following form:

Merchant's city license No. _____. The city of St. Louis: To all who shall see these presents, greeting: Know ye that _____ having paid to _____, license collector of the City of St. Louis, the sum of _____ dollars, being the tax and license upon _____ as a merchant, therefore, the said _____ is hereby authorized to sell any goods, wares and merchandise of any description, except as otherwise provided by ordinance at any one store, stand or place of business within the city, or at the merchants' exchange, for the year ending on the first Monday of July, 20 _____. In testimony whereof, I _____, comptroller of the City of St. Louis, have hereunto set my hand this _____ day of _____, 20____, comptroller. Attest: _____, register. Tax, _____; license, _____, _____. Delivered this _____ day of _____ 20____, _____, license.

Merchant's city license No. _____. The city of St. Louis: To all who shall see these presents, greeting: Know ye that _____ having paid to _____, license collector of the City of St. Louis, the sum of _____ dollars, being the tax and license upon _____ as a merchant, therefore, the said _____ is hereby authorized to sell any goods, wares and merchandise of any description, except as otherwise provided by ordinance at any one store, stand or place of business within the city, or at the merchants' exchange, for the year ending on the first Monday of July, 20 _____. In testimony whereof, I _____, comptroller of the City of St. Louis, have hereunto set my hand this _____ day of _____, 20____. _____, comptroller. Attest: _____, register. Tax, _____, license, _____, _____. Delivered this _____ day of _____, 20____, _____, license collector. (1948 C., Ch. 13, § 54; 1960 C., § 146.140; 1994 C., § 8.56.160.)

City Counselor Ops.: 8430

8.56.170 License—Blanks—Stubs.

The blank licenses provided for in Section 8.56.160 shall be bound in book form, with suitable margins or

stubs, on which shall be made and entered the sworn statements required by this chapter. There shall also be entered upon the margins or stubs the amount of tax or license collected in accordance with the statements so made. These margins or stubs shall be returned, with the License Collector's statements of the items and aggregate amount collected, to the Comptroller, who shall examine and compare them, and charge the aggregate amount collected to the License Collector. (1948 C., Ch. 13, § 55; 1960 C., § 146.150; 1994 C., § 8.56.170.)

8.56.180 Taxes and fees—Delinquent.

All taxes and fees due for the payment of merchants licenses remaining unpaid after October 31 shall bear interest at the rate of 1% per month or fraction thereof. In addition thereto, any taxpayer failing to pay any merchants tax or license fee by October 31, shall be liable for a penalty of 5% of the amount of the unpaid tax or license fee for each month or fraction of a month during which such failure to pay continues, with the penalty not to exceed 15% of the total tax determined to be due. It is hereby expressly provided that the aforementioned interest and penalty shall not apply if a final determination of the amount of the merchants license tax and/or fee has not been made by the board of merchants and manufacturers tax equalization by October 31. In that event, however, any amount so due shall bear interest at the rate of 1% per month or fraction thereof beginning 35 days after the final determination of the amount of the tax or fee has been made by the board of merchants and manufacturers tax equalization. Also in that event, the penalty of 5% of the amount of the unpaid tax or fee for each month or fraction of a month during which such failure to pay continues shall begin 35 days after the final determination of the amount so due has been made by the board of merchants and manufacturers tax equalization. The Comptroller of the City is authorized to promulgate rules and regulations not inconsistent with the rules of this section to ensure full and proper compliance. (1960 C., § 146.180; Ord. No. 57296, § 1, 1977; Ord. No. 56985, § 1, 1975; 1994 C., § 8.56.180.)

8.56.190 Taxes and fees—Uses.

The Comptroller is directed to set aside thirty-nine seventy-eighths of the ad valorem tax and twenty-five one hundred seventy-fifths of the tax on sales levied and collected under this chapter for payment of interest and principal requirements on the bonds hereafter to be issued, which were authorized by a vote of the people at an election held in the City on May 15, 1934, save and except the bonds to be issued under proposition ten on the ballot of that election. (1948 C., Ch. 13, § 47; 1960 C. 146.070; 1994 C., § 8.56.190; Ord. No. 48893, § 1, 1958; Ord. No. 48430, § 1, 1957; Ord. No. 46759, § 1, 1953; Ord. No. 44879, § 2, 1949.)

City Counselor Ops.: 9106

8.56.200 Enforcement.

It shall be the duty of the License Collector to carefully examine all statements filed with him and to prosecute all violations of this chapter according to law. Before instituting any prosecution, the License Collector shall give the merchant an opportunity of explaining the statement and correcting it if inadvertently made. If it shall appear to the License Collector that the false statement was willfully and corruptly made, he shall report all the facts to the grand jury. (1948 C., Ch. 13, § 57; 1960 C., § 146.170; 1994 C., § 8.56.200.)

City Counselor Ops.: 9459

Chapter 8.58

MINIATURE PONY TRACKS

Sections:

8.58.010 Definitions.
8.58.020 Permit—Required.
8.58.030 Permit—Revocation.
8.58.040 Permit—Application—Fee.
8.58.050 Premises.

8.58.010 Definitions.

For the purpose of this chapter:

A. "Miniature pony track" is a track upon which children are permitted, for gain, to ride ponies;

B. "Track for driving miniature power vehicles" is a track upon which children are permitted, for gain, to ride upon miniature power vehicles; and

C. "Person" shall be taken to mean and include a firm, corporation, association of persons and an individual. (1960 C., § 723.010; 1994 C., § 8.58.010; Ord. No. 45290, § 1, 1950.)

8.58.020 Permit—Required.

No person shall operate a track as defined in Section 8.58.010 without first having obtained a permit from the Building Commissioner who shall cause the premises on which the tracks are to be located, to be inspected and shall not issue a permit therefor unless

the premises conform to the requirements of Section 8.58.050. (1960 C., § 723.020; 1994 C., § 8.58.020; Ord. No. 45290, § 2, 1950.)

8.58.030 Permit—Revocation.

The Building Commissioner is authorized, after a hearing upon notice, to revoke a permit for failure to comply with the provisions of this chapter. (1960 C., § 723.060; 1994 C., § 8.58.030; Ord. No. 45290, § 5, 1950.)

8.58.040 Permit—Application—Fee.

The applicant for a permit shall file his application to the Building Commissioner together with a petition signed by a majority of the residents on both sides of the streets surrounding the City block in which it is proposed to operate the track. Upon the receipt of the application the Building Commissioner shall cause a notice thereof to be posted on the premises ten days before the permit is issued. The applicant shall deposit ten dollars with the Building Commissioner which shall be the first annual permit fee if the permit is issued, and shall be retained to cover the cost of inspection if no permit is issued. All permits shall expire on the thirty-first day of December of each year, and the annual permit fee shall be ten dollars, payable in advance to the Building Commissioner. (1960 C., §§ 723.030, 723.040; 1994 C., § 8.58.040; Ord. No. 45290, § 3, 1950.)

8.58.050 Premises.

The premises on which tracks are located shall be equipped with clean and sanitary quarters for ponies while thereon, and shall be kept free from filth, and no track shall be operated between the hours of eleven p.m. and nine a.m. Each track shall be guarded with railings for the protection of the public, and all ponies used during the operation of the tracks shall be removed from the premises when the tracks are not in operation. (1960 C., § 723.050; 1994 C., § 8.58.050; Ord. No. 45290, § 4, 1950.)

Chapter 8.60

MINING

RSMo:

RSMo Ch. 293 (2016) Mining regulations

Sections:

8.60.010 Plat, map and diagram—Required—Information.

8.60.020 Plat, map and diagram—Incorrect.

8.60.030 Applicability of chapter.

8.60.010 Plat, map and diagram—Required—Information.

Every person carrying on mining operations in the City, removing coal, clay or other mineral substances from beneath the surface of the earth shall, on or before the fifteenth day of January and on or before the fifteenth day of July of each year, at his expense, prepare and file in the office of the Recorder of Deeds a true and complete plat, map and diagram of the mine owned, controlled or operated by him, showing the location of all shafts and the extent of the mine, the drifts, tunnels and excavations, giving the length, breadth and height of each drift, tunnel and excavation, and the depth thereof below the surface of the land mined, as the same existed on the first day of the month in which the plat, map and diagram is required to be filed, and showing the location thereof with reference to streets and alleys bounding or crossing the land mined and the location with reference to the lots and lands of neighboring owners, so that the plat, map and diagram will inform the officers of the City, and all parties in interest, of the extent and character of the mining operations on the first of January and the first of July of each year. The plat, map and diagram shall contain a certificate of correctness, signed and sworn to by the owner, manager or other authorized person, and shall remain on file in the office of the Recorder of Deeds and shall be open to inspection by all persons, but shall not be removed from such office. (1948 C., Ch. 41, § 1; 1960 C., § 646.010; 1994 C., § 8.60.010.)

8.60.020 Plat, map and diagram—Incorrect.

When any owner, tenant, subtenant or other person interested in any lot or land shall file with the President of the Board of Public Service his affidavit, or the affidavit of any other credible person for him, stating on knowledge, information or belief that the party owning, controlling or operating any mine in the City has not filed a true and complete plat, map and diagram of such mine as required in Section 8.60.010, and that the party is sinking shafts, mining, excavating, or running drifts or tunnels, and are digging, mining and excavating coal, clay or other mineral substance beyond the lines and boundaries of the lot, lots or tracts of land owned or controlled by him, and has entered in and upon the premises of the party making the affidavit, or for whom the affidavit is made, the President of the Board of Public Service shall notify

the person complained against, requiring the person to file in the office of the President of the Board of Public Service a true and complete plat, map and diagram of the then extent of the mining operations, the plat, map and diagram is to be filed within ten days after notice directed to and served upon the person.

If the person shall fail to file the plat, map and diagram within the time required, or if the person filing the affidavit, or for whom the affidavit is filed, is not satisfied with the plat, map and diagram so filed, the President of the Board of Public Service shall issue his written order and deliver or cause the same to be delivered to a competent City Surveyor, or his deputy, designated by the person filing the affidavit, or for whom the affidavit is filed, commanding him, after his reasonable fees have been tendered by the person complaining, to proceed without delay to survey the drifts, shafts, tunnels and excavations upon the lot, lots or tracts of land involved for the purpose of ascertaining the course and distance of the shafts, drifts, tunnels, passageways or any of them, and to locate the same upon the surface.

The President of the Board of Public Service or other person designated by him may at any and all reasonable times survey the shafts, drifts, tunnels and excavations upon the lot, lots or tracts of land upon which mining operations are being conducted for the purpose of ascertaining the course and distance of drifts, shafts, tunnels and excavations and locating the same upon the surface. (1948 C., Ch. 41, § 2; 1960 C., §§ 646.020, 646.030; 1994 C., § 8.60.020.)

8.60.030 Applicability of chapter.

Nothing contained in this chapter shall be construed to apply to quarries and open and visible excavations and excavations not done by means of tunnels, drifts or other passageways beneath the surface of the ground. (1948 C., Ch. 41, § 3; 1960 C., § 646.040; 1994 C., § 8.60.030.)

Chapter 8.62

MOTOR BUSES

Charter:

Art. I § 1 (13) Regulation of public utilities

RSMo:

RSMo Ch. 387 (2016) Motor carriers generally

City Counselor Ops.: 8262

Sections:

8.62.010 Definitions.
8.62.020 License and permit required.
8.62.030 Permit—Application—Hearing.
8.62.040 Permit—Bond.
8.62.050 Permit—Additional buses on established routes.
8.62.060 Permit—Revocation.
8.62.070 License—Application.
8.62.090 License—Tax—Other City and state taxes not exempted.
8.62.100 License—Plate—Duplicate.
8.62.110 License—Plate—Posting.
8.62.120 License—Plate—Use—Counterfeit.
8.62.130 Sale or transfer.
8.62.140 Annual statement.
8.62.150 Records.
8.62.160 Operating tax.
8.62.170 Additional regulations.
8.62.180 Rate of fare—Established.
8.62.190 Rate of fare—Sign.
8.62.200 Rate of fare—Lower than maximum.
8.62.210 Operation on mileage basis.
8.62.220 Route and destination sign.
8.62.230 Stopping or standing.
8.62.240 Sanitation and mechanical condition.
8.62.250 Operators.
8.62.260 Operative regulations.
8.62.270 Buses operating to and from points outside the City—Termini established.
8.62.280 Buses to and from points outside the City—Receiving and discharging points.

8.62.010 Definitions.

A. "Motor bus" means every motor vehicle having a seating capacity of ten or more persons which is offered for, or engaged in, conveying passengers for hire, when the passenger has no control of the route traversed.

B. "Operator" means to the person or persons actively engaged in the operation of a motor vehicle. (1948 C., Ch. 14, § 1; 1960 C., §§ 605.020, 608.040; 1994 C., § 8.62.010.)

8.62.020 License and permit required.

No motor bus shall be offered for, or engaged in, carrying passengers for hire, over or upon the public streets or places in the City until a license for each motor bus has been obtained as herein provided. No license shall be issued until a permit has been obtained from the Board of Public Service permitting the operation of such motor bus as provided in this chapter. (1948 C., Ch. 14, § 3; 1960 C., § 605.010; 1994 C., § 8.62.020.)

McQuillin:

26.169 et seq. Motorbuses and street railways

8.62.030 Permit—Application—Hearing.

Applications for a permit to operate a motor bus shall be made to the Board of Public Service on a form to be furnished by the Board of Public Service. The Board, or the President thereof, shall fix a date upon which the Board will have a public hearing to consider the application. Notice of the hearing shall be published twice in the City Journal before the hearing. (1948 C., Ch. 14, § 4; 1960 C., § 606.010; 1994 C., § 8.62.030.)

8.62.040 Permit—Bond.

Before granting a permit the Board shall require the applicant to produce, at a public hearing, satisfactory evidence of technical skill and financial responsibility, and shall also require the applicant to give bond to the City in the amount of three thousand dollars for each vehicle proposed to be operated; provided, that if one person proposes to operate more than five vehicles, the total bond required shall be in the amount of ten thousand dollars. The bond shall be in the form prescribed by the City Counselor, and with sureties approved by the City Comptroller, and shall provide adequate security for the prompt payment of any sum accruing to the City and for the performance of other obligations, as well as adequate security for the payment of any damages occurring, or judgments obtained by any person on account of the operation of the motor bus. (1948 C., Ch. 14, § 5(part); 1960 C., § 606.020(part); 1994 C., § 8.62.040.)

City Counselor Ops.: 7926, 8304

8.62.050 Permit—Additional buses on established routes.

An application for a permit to operate motor buses along a route or in a district already served by another person shall not be granted unless the Board of Public Service shall find after investigation that additional motor buses should be used. After so finding, the Board shall give the person holding the permit to operate along the route or in the district the right to operate additional buses in such number as the Board shall have found necessary; and only upon the refusal or failure to operate additional buses within the time fixed by the Board, by the person holding the permit, shall the application be granted. (1948 C., Ch. 14, § 7; 1960 C., § 606.040; 1994 C., § 8.62.050.)

8.62.060 Permit—Revocation.

The Board of Public Service shall not revoke a permit granted by it until after a public hearing, advertised in the same manner as directed in the granting of the permit, and the revocation shall become effective thirty days from the date of revocation by the Board; provided, that for each twelve months of operation under the permit in question, there shall be added to the thirty-day period provided for in this section, an additional period of ten days. (1948 C., Ch. 14, § 6; 1960 C., § 606.030; 1994 C., § 8.62.060.)

8.62.070 License—Application.

The application for the license required shall be addressed to the License Collector of the City, upon a form to be furnished by the Collector, and verified by the affidavit of the owner of the vehicle, and shall state the following:

A. That the owner desires to obtain a license from the City to operate a motor bus for the conveyance of passengers, with or without baggage, over and upon the public streets in the City;

B. The name and address of the owner, and if a corporation, in addition to its name and address, the names and addresses of its officers;

C. The name of the manufacturer and factory number of busses to be operated;

D. The state license number;

E. The City license number;

F. That a permit has been obtained from the Board of Public Service, as required by this chapter, and that the bond required by the City has been approved and filed. (1948 C., Ch. 14, § 8; 1960 C., § 605.030; 1994 C., § 8.62.070.)

8.62.090 License—Tax—Other City and state taxes not exempted.

The license tax required on each motor bus shall be a tax on the business of conveying passengers over and

upon the public streets and places in the City. Nothing contained in this chapter shall be construed to exempt the owner from paying the tax imposed as a registration tax or license by the City in licensing motor vehicles or automobiles to be operated on its streets, or the tax which the City levies on motor vehicles or automobiles as personal property. Nor shall anything in this chapter be construed to exempt the owner or driver of a motor vehicle from the qualifications which the City or the state may require of persons who operate motor vehicles or automobiles upon public streets. (1948 C., Ch. 14, § 14; 1960 C., § 605.090; 1994 C., § 8.62.090.)

8.62.100 License—Plate—Duplicate.

Upon the filing of the application and the payment of the license tax, the License Collector shall assign to the motor bus a distinctive number, and shall issue to the owner thereof a metal plate with the number thereon, and a license to operate the bus.

The license shall bear the number so assigned and shall set forth the facts stated in the application. The license shall also state whether the motor bus is to be driven or operated by the owner or by an employee. In the event of the loss, mutilation or destruction of the license plate, the owner may obtain from the License Collector a duplicate thereof upon filing an affidavit that the license plate has been lost, mutilated or destroyed, and upon payment of a fee of one dollar. (1948 C., Ch. 14, § 9; 1960 C., § 605.040; 1994 C., § 8.62.100.)

8.62.110 License—Plate—Posting.

The license herein provided for shall at all times be posted in the vehicle to which it applies and within view of the passengers carried therein. The number plate shall be at all times conspicuously displayed and securely fastened upon the front portion of the vehicle to which it applies. (1948 C., Ch. 14, § 16; 1960 C., § 605.110; 1994 C., § 8.62.110.)

8.62.120 License—Plate—Use—Counterfeit.

The plate or license required by this chapter shall not be used on any vehicle other than that for which it has been duly issued, nor shall any one use, or permit to be used, any false or counterfeit plate or license. (1948 C., Ch. 14, § 10; 1960 C., § 605.050; 1994 C., § 8.62.120.)

8.62.130 Sale or transfer.

Upon the sale or transfer of a motor bus for which a license shall have been obtained in accordance with the terms of this chapter, the vendee shall immediately file with the License Collector an application to have the license transferred from the vendor to the vendee. This application shall state all the matters required in the original application, and, in addition thereto, the name and address of the vendor and vendee, the number and date of the original license, the date of the sale or transfer, and it shall be accompanied by the original license and license plate and a copy of the bill of sale. The application shall be verified by affidavit. Upon the filing of the application and the payment of one dollar to the License Collector, the Collector shall transfer the license on the records in his office from the vendor to the vendee, and shall issue a new license plate to the vendee for the unexpired portion of the old license. (1948 C., Ch. 14, § 15; 1960 C., § 605.100; 1994 C., § 8.62.130.)

8.62.140 Annual statement.

All person engaged in the operation of motor buses shall file with the Comptroller of the City a full and complete annual statement, sworn, duly signed and attested, showing, by bus routes, the gross receipts of the persons derived from transportation by means of the motor buses on the streets of the City. If any motor bus route is partly within and partly without the City limits, only that portion of the gross receipts of the bus routes shall be included in the statement as the percentage of miles of the bus route within the City limits bears to the whole of the bus route. The annual statement shall be for the fiscal year ending January thirty-first and shall be filed with the Comptroller on or before the first day of March following the fiscal year to which it relates. (1948 C., Ch. 14, § 13(part); 1960 C., § 605.080(part); 1994 C., § 8.62.140.)

8.62.150 Records.

The Comptroller or one of his deputies or employees may inspect and examine the books and records of the person to ascertain the correctness and completeness of the annual statement and he may require a corrected statement to be filed if the first statement filed is found to be not correct or complete. He shall certify to the License Collector the correctness of all statements found to be correct, and the License Collector shall not issue a receipt for any operating tax until the statement has been certified by the Comptroller. (1948 C., Ch. 14, § 13(part); 1960 C., § 605.080(part); 1994 C., § 8.62.150.)

8.62.160 Operating tax.

All persons engaged in the operation of motor buses shall pay annually to the License Collector, as an

operating tax, in addition to the license tax, a sum equal to five percent of the gross receipts derived from transportation by means of the motor buses in the City. The operating tax shall be computed for the fiscal year ending January thirty-first, and shall be paid to the License Collector on or before the first day of April, following the fiscal year for which the license is due. (1948 C., Ch. 14, § 12; 1960 C., § 605.070; 1994 C., § 8.62.160.)

Cases:

Bus company estopped from challenging the validity of 1948 Code C. 14 § 12 which imposes an annual operating tax equal to 5 percent of the company's gross receipts. *St. Louis Public Service Co. v. City of St. Louis,* 302 S.W. 2d 875 (1957).

8.62.170 Additional regulations.

The Board of Public Service shall adopt regulations, not inconsistent with the provisions of this chapter, for the operation and inspection of motor buses and for the qualifications of the drivers as may be reasonable and as will best conserve the interest of the City and the safety of the general public. (1948 C., Ch. 14, § 5(part); 1960 C., § 606.020(part); 1994 C., § 8.62.170.)

McQuillin:

24.667 et seq. Motor buses, street railways and carriers

8.62.180 Rate of fare—Established.

The rate of fare to be asked or received by the owner, operator or person in charge of any motor bus shall not exceed ten cents for each passenger for the entire journey or any part thereof that may be designated by the passenger. No person owning, operating or in charge of a motor bus, shall demand or receive any sum of money for services in excess of the rates herein authorized. (1948 C., Ch. 14, § 17; 1994 C., § 8.62.180.)

8.62.190 Rate of fare—Sign.

There shall be posted in every motor bus in a conspicuous place, a sign setting forth the rates or charges authorized by this chapter and at the upper portion of the sign shall be the words: "maximum charges authorized by ordinance." (1948 C., Ch. 14, § 18; 1960 C., § 607.010; 1994 C., § 8.62.190.)

8.62.200 Rate of fare—Lower than maximum.

In the event that a rate or charge lower than the maximum herein authorized shall be made, it shall be the duty of the owner, operator or person in charge of the bus, before it is operated, to clearly inform the passenger what the rate of charge will be, and to have the rate printed on a sign and posted in a conspicuous place in the vehicle. (1948 C., Ch. 14, § 19; 1960 C., § 607.020; 1994 C., § 8.62.200.)

8.62.210 Operation on mileage basis.

No motor bus shall be rented or let on the basis of mileage or distance traveled. (1948 C., Ch. 14, § 20; 1960 C., § 607.030; 1994 C., § 8.62.210.)

8.62.220 Route and destination sign.

Motor buses, operated as such, shall be plainly marked in a manner to indicate their character, and on every bus, when at the service of the public, there shall be a sign, plainly visible by day or night, indicating the route traversed and the destination of the vehicle. (1948 C., Ch. 14, § 21; 1960 C., § 608.010; 1994 C., § 8.62.220.)

8.62.230 Stopping or standing.

No motor bus while waiting for time of departure, shall stop or stand on any public street except on public stands as are lawfully established, or upon private stands as may be established by permit. (1948 C., Ch. 14, § 22; 1960 C., § 608.020; 1994 C., § 8.62.230.)

8.62.240 Sanitation and mechanical condition.

All motor buses shall be kept in a clean, sanitary condition, and the motor, brakes and other mechanism shall be kept in good working order. (1948 C., Ch. 14, § 23; 1960 C., § 608.030; 1994 C., § 8.62.240.)

8.62.250 Operators.

No person shall drive or operate a motor bus unless he is competent to do so.

No person shall drive or operate such vehicle who has an infirmity of body or mind which might render him unfit for the safe operation thereof. Nor shall any such vehicle be driven or operated by any person who is addicted to the use of intoxicating liquors or while intoxicated. All operators on motor buses shall be in distinctive uniform and shall be neat and tidy in appearance. Each operator shall be assigned a number which shall be worn or displayed in some conspicuous place on his person. The name and address of the driver or operator shall at all times be posted in the vehicle under the heading: "name and address of chauffeur," unless the vehicle is operated by a corporation, in which case the name and address of the corporation shall appear. (1948 C., Ch. 14, § 24; 1960 C., § 608.050; 1994 C., § 8.62.250.)

8.62.260 Operative regulations.

It shall be unlawful for the operator of any motor bus:

A. To solicit passengers other than by the sign to be posted on each bus as provided in this chapter;

B. To discharge or take on passengers without bringing the vehicle to a full stop;

C. To carry more passengers, including the driver than may be carried with safety and comfort to the passengers;

D. To operate the vehicle while any person riding thereon is not entirely within the body thereof or upon the upper deck or while any person is standing or sitting on the running boards, fenders or doors thereof;

E. To discharge or take on passengers except at the right-hand side of such vehicle;

F. To carry any passenger beyond the point on the route of the vehicle at which the passenger had requested that he be permitted to leave the vehicle, or beyond the destination indicated on the printed sign displayed on the vehicle in accordance with this chapter, willfully or without the consent of the passenger;

G. To cross the tracks of any steam railway without bringing the motor vehicle to a full stop;

H. To allow any passenger or passengers to obstruct the clear view of the driver at any time. (1948 C., Ch. 14, § 25; 1960 C., § 608.060; 1994 C., § 8.62.260.)

8.62.270 Buses operating to and from points outside the City—Termini established.

There are established in the City, the following motor bus termini:

A. The parking area on the south side of Delmar Boulevard between Broadway and Sixth Street;

B. The parking area on the north side of Delmar Boulevard commencing at a point thirty-five feet east of the building line of Broadway and thence extending sixty feet eastwardly;

C. The parking area on the west side of Third Street between Washington Avenue and St. Charles Street.

The parking areas above-specified shall be set apart for the exclusive use of motor buses engaged in the transportation of passengers to or from points outside of the City from and to points within that portion of the City that is contained within the following-described boundaries: Bounded on the north by the south line of Cass Avenue, on the east by the west line of Broadway between Cass Avenue and O'Fallon Street, and the west line of Third Street, south of Broadway, on the south by the north line of Chouteau Avenue and on the west by the east line of Seventeenth Street.

All motor buses engaged in such transportation of passengers shall be parked only in these parking areas. (1948 C., Ch. 14, § 26; 1960 C., § 608.070; 1994 C., § 8.62.270.)

8.62.280 Buses to and from points outside the City—Receiving and discharging points.

All motor buses engaged in the transportation of passengers, to or from points outside of the City and entering the City, shall neither receive nor discharge passengers at any points other than the stations hereinafter specified:

Immediately after entering or crossing Union Boulevard, Kingshighway Boulevard, Grand Boulevard, Jefferson Avenue, Eighteenth Street, Fourteenth Street, Tesson Street, Schirmer Street, Bates Street, Russell Avenue and Chouteau Avenue, Halls Ferry Road at Broadway, Taylor Avenue at Broadway, Taylor Avenue at West Florissant Avenue, Salisbury Street, Cass Avenue, Cole Street (formerly known as Wash Street), Alice Avenue, Robin Avenue, Thirteenth Street at St. Louis Avenue, Delmar Boulevard at Tenth Street, Delmar Boulevard at Eleventh Street, St. Charles Street between Third Street and Fourth Street, Riverview Drive, Harris Avenue and West Florissant Avenue, Angelica Street and Blair Avenue, Thirteenth Street and North Market Street, Taylor Avenue at Page Boulevard, Vandeventer Avenue at Page Boulevard, Chippewa Street and Hampton Avenue, Watson Road and Chippewa Street, Ninth and Mallinckrodt Streets, Ninth Street and St. Louis Avenue, Ninth and North Market Streets, Ninth and Tyler Streets, Ninth Street and Cass Avenue, Ninth Street and Biddle Street, Ninth Street and Franklin Avenue, Tenth Street and Cass Avenue, Tenth and Biddle Streets, Tenth and Carr Streets, Tenth Street and Franklin Avenue, Tenth Street and Washington Avenue, and Twelfth Boulevard and Lucas Avenue, Broadway at Grape Avenue, Broadway at Humboldt Avenue, Broadway at East Prairie, Broadway at St. Louis Avenue, Broadway at Canaan Avenue, Broadway at Angelica Street, Broadway at North Market Street, Broadway at Tyler Street, Penrose at Twentieth Street, West Florissant Avenue at Shreve Avenue, West Florissant Avenue at Park Lane, Halls Ferry Road at McLaran

Avenue, Halls Ferry Road at Canaan Avenue, Halls Ferry Road at Veronica Avenue, and the termini hereinbefore described.

No such motor bus shall transport any passenger from one point within the City to another point within the City; provided that this section shall not apply to motor buses operated by motor transportation companies operating mainly within the limits of the City. (1948 C., Ch. 14, § 27; 1960 C., § 608.080; 1994 C., § 8.62.280; Ord. No. 51235, § 1, 1962; Ord. No. 49738, § 1, 1959; Ord. No. 49449, § 1, 1959; Ord. No. 48383, § 1, 1957.)

Chapter 8.64

MOTOR CARRIER TRANSPORTATION BROKERS

Sections:

8.64.010 Defined.
8.64.020 License—Required.
8.64.030 License—Application.
8.64.040 License—Separate.
8.64.060 License—Display.
8.64.070 License—Change of address.
8.64.080 License Collector to keep register.

8.64.010 Defined.

A "motor carrier transportation broker," as used in this chapter, is a person offering for compensation, direct or indirect, to bring together or act as agent for a prospective motor vehicle owner or operator (other than a licensed common carrier) and a prospective shipper or passenger, with the object of a mutual arrangement or contract between them whereby the owner or operator shall, for consideration permit the passenger or the property of the shipper to be transported in the motor vehicle. (1948 C., Ch. 13, § 14; 1960 C., § 694.010; 1994 C., § 8.64.010.)

8.64.020 License—Required.

It shall be unlawful for any person to operate or engage in the business of a motor carrier transportation broker within the City without first obtaining a license to do so as provided for in this chapter. (1948 C., Ch. 13, § 15; 1960 C., § 694.020; 1994 C., § 8.64.020.)

8.64.030 License—Application.

Application for the license required in Section 8.64.020 shall be made in writing to the License Collector and shall describe in detail the location and the nature of the business to be conducted. (1948 C., Ch. 13, § 16(part); 1960 C., § 694.030; 1994 C., § 8.64.030.)

8.64.040 License—Separate.

A separate application and license shall be required for each place of business. (1948 C., Ch. 13, § 16(part); 1960 C., § 694.040; 1994 C., § 8.64.040.)

8.64.060 License—Display.

The license shall be displayed in the place of business of the motor carrier transportation broker. No license issued hereunder shall authorize a licensee to do business except from the location shown in the license. (1948 C., Ch. 13, § 17(part); 1960 C., § 694.050(part); 1994 C., § 8.64.060.)

8.64.070 License—Change of address.

If place of business is changed, the license shall be surrendered, and the License Collector shall, without further fee, issue a new license for the unexpired period showing the new. (1948 C., Ch. 13, § 18; 1960 C., § 694.060; 1994 C., § 8.64.070.)

8.64.080 License Collector to keep register.

The License Collector shall keep a separate register of licensed motor carrier transportation brokers. (1948 C., Ch. 13, § 19; 1960 C., § 694.070; 1994 C., § 8.64.080.)

Chapter 8.66

MOTOR FUEL DEALERS

Sections:

8.66.010 Motor fuel defined.
8.66.020 License—Required.
8.66.030 License—Application—Bond.
8.66.050 License—Fees—Payment.
8.66.060 License—Operating without.
8.66.070 Invoice or sales ticket.
8.66.080 Records—Statements—Required.
8.66.090 Records—Statements—Investigation.
8.66.100 Statements—Form.
8.66.110 Statements—Late.
8.66.120 Statements—False.
8.66.130 Trade name, octane content and price to be displayed.
8.66.140 Signs and placards—Restricted.
8.66.150 Signs and placards—Contents.

8.66.160 Deceiving purchaser.
8.66.170 Tank installation—Permit fee.
8.66.180 Tank installation—Inspection.

8.66.010 Motor fuel defined.

For the purpose of this chapter, "motor fuel" means and includes every volatile, inflammable liquid ordinarily, practically or commercially usable in internal combustion engines for the generation of power. It does not, however, include kerosene oil or kerosene distillate. (1948 C., Ch. 28, § 1; 1960 C., § 651.010; 1994 C., § 8.66.010.)

RSMo:

RSMo Ch. 323 (2016) Liquefied petroleum gas

8.66.020 License—Required.

No person shall engage in, carry on or conduct the business of selling gasoline or motor fuel, or transporting the same in barrels, tank wagons or other containers having a capacity of more than five gallons or storing gasoline or other motor fuel in quantities in excess of ten gallons without first having obtained a license therefor from the License Collector. (1948 C., Ch. 28, § 2; 1960 C., § 651.020; 1994 C., § 8.66.020.)

Cases:

In lot owner's action against gasoline tank owner under ordinance forbidding installation of gasoline tanks less than 25 feet from another lot, judgment was properly entered for tank owner where no evidence showed that installation was subsequent to effective date of ordinance. *Wippler v. Hohn,* 110 S.W. 2d 409 (1937).

McQuillin:

26.118 Gasoline and oil transportation, storage and sales

8.66.030 License—Application—Bond.

Every person who shall store gasoline or other motor fuel as prescribed in Section 8.66.020, or shall be engaged in the business defined in Section 8.66.020, shall make application for a license to the License Collector. The application shall set forth the name of the applicant, and, if an individual, his place of residence, and, if a firm, the names and places of residence of all its members, and if a corporation the names and places of residence of all its officers, and the application shall also state the place of business of the applicant. The applicant shall execute and file a bond to the City, in the sum of two thousand dollars, with a surety company approved by the Comptroller of the City as surety, or in the sum of one thousand dollars is secured by cash deposited with the License Collector, as the applicant may elect, for the use and benefit of the City, conditioned for the payment to the License Collector, within the time hereinafter specified, of the license fee specified in Section 8.66.040. Upon the approval of the bond by the Comptroller, or the deposit of cash in the sum of one thousand dollars with the License Collector, the License Collector shall issue a license to the person. The form of the license shall be determined by the License Collector, with the approval of the Comptroller of the City. (1948 C., Ch. 28, § 3; 1960 C., § 651.030; 1994 C., § 8.66.030.)

8.66.050 License—Fees—Payment.

On the sixteenth day of January, April, July and October of each year, or as soon thereafter as sworn statements or the findings of the Comptroller shall be available, the Comptroller shall send all sworn statements that have been accepted by him, and his findings to the License Collector, who shall notify all persons required to pay the license herein provided for, of the amount to be paid. Any person who fails, neglects or refuses to pay this license within ten days after having received notice shall be deemed guilty of a misdemeanor; provided, that every person who files with the Comptroller a sworn statement, as provided by this chapter, shall become liable for payment of the tax immediately upon the filing of the sworn statement, without notice from the License Collector. (1948 C., Ch. 28, § 9; 1960 C., § 651.100; 1994 C., § 8.66.050.)

8.66.060 License—Operating without.

Any person who shall store gasoline or other motor fuel, or engage in, carry on or conduct the business of selling gasoline or other motor fuel or transporting the same in barrels, tank wagons or other containers having a capacity of more than five gallons, without first having obtained a license from the License Collector, shall be guilty of a misdemeanor. (1948 C., Ch. 28, § 10; 1960 C., § 651.110; 1994 C., § 8.66.060.)

8.66.070 Invoice or sales ticket.

Every person selling or delivering gasoline or other motor fuel to a customer for the purpose of storing, or for the purpose of resale or transportation, shall, at the time of delivery, furnish the customer with an invoice or sales ticket, showing the number of gallons and the purchase price, and stating whether or not the purchase price includes the license tax herein provided for. A carbon copy of the invoice or sales ticket shall be retained by every such person for a period of twelve

months, and shall be available for examination by the Comptroller or his duly authorized deputy. (1948 C., Ch. 28, § 6(part); 1960 C., § 651.070; 1994 C., § 8.66.070.)

8.66.080 Records—Statements—Required.

Every person who shall store gasoline or other motor fuel, as prescribed in Section 8.66.020, shall keep an accurate record of all receipts of gasoline or other motor fuel, showing the number of gallons received, and on or before the fifteenth day of the month last aforesaid, shall file with the Comptroller of the City a sworn statement of the number of gallons of gasoline or other motor fuel stored. Every person engaged in the business of selling or transporting gasoline or other motor fuel, as prescribed in Section 8.66.020, shall keep an accurate record of all sales of gasoline or other motor fuel, showing the number of gallons purchased or sold, and shall, in January, April, July and October of each year, and on or before the fifteenth day of each of the months last aforesaid, file with the Comptroller of the City a sworn statement of the number of gallons of gasoline or other motor fuel purchased or sold. (1948 C., Ch. 28, § 5(part); 1960 C., § 651.050(part); 1994 C., § 8.66.080.)

8.66.090 Records—Statements—Investigation.

The Comptroller of the City or his duly authorized deputy, is authorized to investigate the correctness and accuracy of the return and reports required herein, and for that purpose shall have access at all reasonable times to the books, documents and reports bearing on the number of gallons of gasoline or other motor fuel stored, or the number of gallons of gasoline or other motor fuel purchased or sold, and may appoint temporary inspectors to assist in the proper investigation whenever, in his opinion, it is necessary to do so. (1948 C., Ch. 28, § 5(part); 1960 C., § 651.050(part); 1994 C., § 8.66.090.)

8.66.100 Statements—Form.

The sworn statement herein required shall be in the form prescribed by the Comptroller and shall contain additional information as he may deem necessary for the proper enforcement of this chapter. (1948 C., Ch. 28, § 6(part); 1960 C., § 651.060; 1994 C., § 8.66.100.)

8.66.110 Statements—Late.

The Comptroller may accept the sworn statement if filed after the fifteenth day of each of the months set forth in Section 8.66.100 but the acceptance shall not relieve any person failing to make the report within the time required, from the penalty provided for in Section 8.66.120; provided, that the Comptroller may reject any report, whether filed within the time specified, or otherwise, if he or his duly authorized deputy shall find that the sworn statement is not a true statement of the number of gallons purchased, stored or sold, as aforesaid, and may substitute therefor a statement of the number of gallons found by him or his duly authorized deputy to have been purchased, stored or sold, within the period of three months; provided further, that where no sworn statement shall have been filed as herein required, the Comptroller shall ascertain the number of gallons purchased, stored or sold within each period of three months, as aforesaid, and shall file a statement thereof with the sworn statements referred to. (1948 C., Ch. 28, § 7; 1960 C., § 651.080; 1994 C., § 8.66.110.)

8.66.120 Statements—False.

Every person refusing or neglecting to make the report or return provided for in this chapter or making any false or fraudulent report or return, or interfering with the Deputy Comptroller or the inspectors in the performance of their duties, shall be guilty of a misdemeanor. (1948 C., Ch. 28, § 8; 1960 C., § 651.090; 1994 C., § 8.66.120.)

8.66.130 Trade name, octane content and price to be displayed.

It shall be unlawful for any person to sell or offer for sale, at retail, for use in internal combustion engines in motor vehicles, any gasoline, unless the seller shall post and keep continuously posted on the individual pump or other dispensing device from which the gasoline is sold or offered for sale, a sign or placard not less than seven inches in height and eight inches in width, stating clearly and legibly the selling price, including all governmental tax to be paid by the purchaser, per gallon of the gasoline so sold or offered for sale, from the pump or other dispensing device, together with the name, trade name, brand, mark or symbol, if any, of the gasoline. The sign, placard or other display shall also contain the octane rating of the gasoline, determined according to the method known as A.S.T.M. Designation: D357-40, which was adopted by the American Society for Testing Materials in 1939 and revised in 1940. (1948 C., Ch. 28, § 12; 1960 C., § 651.120; 1994 C., § 8.66.130.)

8.66.140 Signs and placards—Restricted.

No sign or placard stating or referring directly or indirectly to the sale price of gasoline, other than the

prices, brand or symbol and octane rating on the signs or placards provided for in Section 8.66.130, shall be posted or maintained on or about the premises on which gasoline is sold or offered for sale. (1948 C., Ch. 28, § 13; 1960 C., § 651.130; 1994 C., § 8.66.140.)

8.66.150 Signs and placards—Contents.

It is unlawful for any person in connection with the sale or offer for sale at retail, of any petroleum products other than gasoline for use in motor vehicles, to post or maintain at such place of sale or offer for sale, any sign, placard or other display that states, relates or refers to the price at which the petroleum products are sold or offered for sale, except as follows:

A. The sign, placard or other device shall be not less than seven inches in height and eight inches in width;

B. The price stated, mentioned or referred to on the sign, placard or other display, shall be the unit of the measure by which the petroleum products are customarily sold at retail;

C. The name, trademark, brand, mark or symbol, and the grade or quality classification, if any, of the petroleum products shall be clearly stated on the sign, placard or other display, and if the petroleum products are sold without identification by name, trademark, brand, mark or symbol, the sign, placard or other display shall refer clearly to the petroleum products as unbranded;

D. If the petroleum products are sold or delivered by or through the means of dispensing equipment, the sign, placard or other display shall be posted or maintained on the dispensing equipment; but nothing herein shall be so construed as to prohibit the posting or maintaining of signs or other display containing information respecting the petroleum products elsewhere on the premises; provided, that nothing on any sign or display shall be contradictory to statements appearing on any other sign posted on the premises with respect to the price or quality of the same petroleum products. (1948 C., Ch. 28, § 14; 1960 C., § 651.140; 1994 C., § 8.66.150.)

8.66.160 Deceiving purchaser.

It shall be unlawful for any person to sell or offer for sale, gasoline or other petroleum products for use in motor vehicles, at retail, so as to, in any manner, deceive or tend to deceive, the purchaser as to the price, nature, quality or identify thereof. (1948 C., Ch. 28, § 15; 1960 C., § 651.150; 1994 C., § 8.66.160.)

8.66.170 Tank installation—Permit fee.

Every person desiring to install tanks for the keeping or storage of gasoline or other volatile inflammable liquids, shall first file with the Board of Public Service an application for a permit to install same. He shall also file in the Division of Building and Inspection a plat drawn to a scale showing the location of the premises, the location and number of tanks on the premises and the number of tanks to be installed. He shall pay to this division a permit fee of five dollars, an inspection fee of five dollars for each tank, and an annual inspection fee of five dollars for tanks at each location. (1948 C., Ch. 28, § 16; 1960 C., § 651.160; 1994 C., § 8.66.170.)

8.66.180 Tank installation—Inspection.

The Board of Public Service shall render to the Division of Building and Inspection a copy of the application and the division, within five days thereafter, shall cause an inspection to be made of the premises and shall submit its findings together with the plat to the Board of Public Service. If, after an examination of these findings and the plat, the Board of Public Service finds that all the provisions of this chapter and all other ordinances of the City pertaining thereto have been complied with, and finds that construction, maintenance and location are consistent with public safety, it shall issue the applicant a permit. If the Board does not so find, it shall refuse the permit. (1948 C., Ch. 28, § 17; 1960 C., § 651.170; 1994 C., § 8.66.180.)

Chapter 8.68

RESERVED

Editor's Note:

Ordinance 59345 repealed Ordinances 42217, 44622 and 55004, codified as Chapter 8.68, Movers of Furniture and Fixtures.

Chapter 8.70

PARKING STATIONS

For public garages, see Ch. 8.76.

Prior ordinance history: Ords. 52552, 52722, 53450, 53461, 54448

City Counselor Ops.: 9382, 10086

Sections:

8.70.005	**Chapter designated.**
8.70.010	**Defined.**
8.70.020	**Permit—Required—Nontransferable.**

8.70.030 Permit—Application—Contents.
8.70.035 Surface parking lots.
8.70.040 Permit—Application—Plats.
8.70.050 Permit—Issuance—Fee.
8.70.060 Permit—Denial.
8.70.070 Permit—Suspension or revocation—Hearing.
8.70.080 Permit—Suspension or revocation—Barricading lot.
8.70.090 Annual inspection fee.
8.70.100 Signs.
8.70.110 Sidewalks and ground maintenance.
8.70.120 Lighting—Required.
8.70.130 Lighting—Required.
8.70.140 Lighting—Attendants on duty.
8.70.150 Driveways.
8.70.160 Compliance with building code.
8.70.170 Illegal use of cars.
8.70.180 Change of rates.
8.70.185 Ticket to be issued.
8.70.190 Egress.
8.70.200 Liability—Bond.
8.70.210 Illegal use of parking station.
8.70.220 Enforcement.
8.70.230 Additional rules and regulations.

8.70.005 Chapter designated.

This chapter shall be known and may be cited and referred to as "the Parking Stations Regulation Ordinance." (1960 C., § 388.170; 1994 C., § 8.70.005; Ord. No. 55061, § 1(part), 1968.)

8.70.010 Defined.

"Parking station" or "parking lot" when used in this chapter means any building, structure, or parcel of land regularly used, in whole or in part, for the storing or parking of more than four motor vehicles, except this shall not be deemed to apply or be applicable to the following buildings, structures, or parcels of land:

A. A parking area used exclusively for church parking;

B. A parking area used for dead storage of new or used motor vehicles held by franchised dealers and agents for sale, lease or rent;

C. A parking area attached to a motor vehicle repair shop where motor vehicles are stored awaiting repairs;

D. A parking area used for the storage of construction equipment;

E. A parking area used for the storage of truck trailers, hauling trailers, or other wheeled rental equipment that is not self-propelled.

"Security incident" means any incident on the premises of a surface parking lot that results in criminal harm to any person, vandalism of vehicles, theft of vehicles or property inside vehicles, discharging of firearms, or any other incidents that threaten the health, safety, and welfare of the public.

"Security lighting" means artificial lighting producing a minimum of two (2.0) foot-candles in horizontal luminance and one (1.0) foot-candle in vertical luminance, and a maximum to minimum uniformity ratio of five to one (5:1).

"Surface parking lot" means any plot, piece, or parcel of land, as defined in Section 26.12.010 of the Revised Code of the City of St. Louis, that has no building or structure above, and upon which a business is conducted of storing motor vehicles for a fee. A surface parking lot includes all spaces, aisles, access drives, and landscaped areas. Surface parking lots may be exempt from the requirements imposed by this chapter if they meet (A), (B), and (C) or if they solely meet (D or (E):

A. There is no fee charged to park; and

B. The lot is adjacent to a business establishment; and

C. The lot is provided for the exclusive use and convenience of persons doing business with the adjacent establishment; or

D. If they are continuously monitored (no less than twenty-four (24) hours per day) by on-site security personnel or by closed-circuit video monitoring carried out in real time by security personnel located at a security station i) that is located within the 911 service area of the City of St. Louis, ii) that is located within a facility whose security technologies have received Certification by the United States Department of Homeland Security under the Support Anti-Terrorism by Fostering Effective Technologies Act (the "SAFETY Act"), and iii) that contains sufficient equipment and connection to immediately engage the 911 system or other direct emergency dispatch system implemented

by the St. Louis Metropolitan Police Department shall be deemed to be in compliance with the requirements for surface parking lots set forth in this chapter.
(1960 C., § 388.010; 1994 C., § 8.70.010; Ord. No. 71834, § 2, 4-6-2024, eff. 4-26-2025; Ord. No. 55061, § 1(part), 1968.)

8.70.020 Permit—Required—Nontransferable.

No person, firm or corporation shall operate, maintain or conduct a parking station in the City without first obtaining a parking station permit from the Building Commissioner. A permit must be obtained for each parking station and no permit shall be transferable from one person to another nor transferable from one lot to another.

The Building Commissioner may order barricades for any or all parking stations not in full compliance within one hundred and eighty days from the date of original notification. (1960 C., § 388.020; 1994 C., § 8.70.020; Ord. No. 55061, § 1(part), 1968.)

8.70.030 Permit—Application—Contents.

Application for a parking station permit may be made by the person intending to operate the parking station upon forms furnished by the Building Commissioner and shall set forth the following information:

A. The name under which, and the place where, the parking station is to be operated;

B. Whether the applicant is an individual, partnership or corporation; if an individual, the name and business and residence of the applicant; if a partnership, the name and business and residence address of each partner; if a corporation the name, date and state under which such corporation was organized, the names and business addresses of the officers, manager-in-charge, and directors thereof;

C. Whether the premises are owned or leased by the applicant, and if leased, the name and residence and business address of each owner or partner thereof;

D. The vehicle capacity and hours of operation of the parking station;

E. The hours, if any, during which an attendant will be on duty, and any other information deemed necessary by the Building Commissioner and not inconsistent with this chapter.

F. Application; Additional Requirements. Permit application forms for surface parking lots as required by this section must include, in addition to the existing application requirements of this section, the following, which will apply to all surface parking lots:

1. For surface parking lots, the signature(s) of the owners of the property, the signature(s) of the lessors of the property, and the signature(s) of the parking lot operators must appear on the application;

2. For surface parking lots located in Zoning Districts F through I and Zoning District L, documentation describing how all of the requirements in Subsection 8.70.035.A, surface parking lot requirements, will be addressed must be attached to the application for approval by the Building Commissioner;

3. For surface parking lots, each permit application must be reviewed by the Police Division to evaluate the adequacy of security measures to be implemented.
The above paragraphs representing additional application requirements will be requirements on a surface parking lot application form to be provided by the Building Commissioner.
(1960 C., § 388.030(1); 1994 C., § 8.70.030; Ord. No. 71834, § 4, 4-6-2024, eff. 4-26-2025; Ord. No. 55061, § 1(part), 1968.)

8.70.035 Surface parking lots.

A. *Surface parking lot requirements.* Documentation must be submitted with the permit application or permit renewal describing the physical improvements, operating plans, and security measures that will be implemented on the premises to protect patrons from harm, to protect vehicles and property inside vehicles on the parking station from theft, vandalism or other damage, and to protect the public from incidents that threaten public health, safety and welfare the Building Commissioner may waive one (1) or more of the surface parking lot requirements described in this section if he concludes that the parking lot owner can show that the requirements impose a hardship due to an inability to make reasonable use of the property for parking, or impose a hardship on adjacent properties, or that they eliminate access to a public right-of-way. Hardship should be unique to the affected parking lot, not just due to ordinary inconvenience, difficulty, or maximizing the number of parking spaces, and should not generally apply to other properties.
All permit applications for surface parking lots must include a site plan or other documentation to demonstrate compliance with the following requirements:

1. A perimeter fence extending along abutting public streets/alleys between every vehicle entry/exit and

pedestrian ingress/egress opening. Vehicle entry/exit must be no wider than twenty (20) feet each. Pedestrian ingress/egress must be no wider than six (6) feet. Perimeter fences must have a height of at least four (4) feet, open at least eighty (80) percent (i.e., no more than twenty (20) percent opaque), and constructed of aluminum, steel or other decorative metal. Other permitted options shall include a continuous masonry barrier, or bollards spaced no more than twelve (12) inches apart, or landscaped mounds. Permitted options must be at least three (3) feet in height and capable of deterring trespassing vehicles and pedestrians.

For any new surface parking lot constructed after the effective date of this chapter, or any existing surface parking lot that currently has no perimeter fence in compliance with this chapter, no chain link fencing is permitted along any public street or alley except for temporary lots adjacent to an active construction project. No additional barrier higher than six inches is allowed along or adjacent to a perimeter fence.

2. No surface parking lot may operate outside of hours of operation approved by the Building Commissioner.

3. Landscaping shall be free of weeds, trash and debris and be well maintained at all times.

4. Paving and striping must be in good condition.

5. Security lighting must be present and functioning during all non-daylight hours. A perimeter fence extending along abutting public streets/alleys between every vehicle entry/exit and pedestrian ingress/egress opening.

6. Surfaces shall be free of potholes, large cracks, and standing water.

7. Signage must have the address of the surface parking lot, the hours of operation for the surface parking lot, the phone number of its management company and/or owner, and the amount to be charged for parking. A local contact must be provided, in addition to the address and phone number of any out-of-town owner/operator.

8. The property owner/lessee must have an occupancy permit and a business license. The occupancy permit will list the approved hours of operation.

9. All lots must be cleaned of trash, glass, and other debris before opening the following day. An owner, operator, or lessee applying for a temporary construction surface parking lot permit is not required, for the purposes of a temporary permit, to meet requirements 2, 3, 4, 5, 6, 7, 8, 9, and 10.

10. The property owner/lessee must provide a certificate of insurance showing at least one million dollars ($1,000,000.00) of commercial general liability insurance (updated copy sent to the Building Division annually).

11. Security video surveillance system capable of producing retrievable images and videos, and positioned to view the surface parking lot's points of vehicular entrance, exit, and able to view all parked vehicles.

12. Entry and exit by vehicles shall only be possible: a) when an attendant on duty allows entry or exit, or b) by means of a security gate that is part of an automated payment system, or c) mobile phone payment system.

B. *Permit required for surface parking lot.*

1. As of the effective date of the ordinance from which this chapter derives, it shall be unlawful for any individual, firm, association, corporation, partnership, or organization:

(a) To operate or maintain a surface parking lot unless the owner, operator, or lessee thereof has applied for and obtained a surface parking lot permit from the City; or

(b) To operate such business after such permit has expired or has been revoked or suspended by the City.

2. A surface parking lot permit shall be required for each surface parking lot location, even a location within another business operation. This permit shall be in addition to any other permit or license required by other local, state, or federal government agencies. No permit shall be issued for any business seeking to operate at a location prohibited by any applicable local, state, or federal law, statute, ordinance, rule, or regulation. Every individual, firm, corporation, partnership, organization, or association holding a surface parking lot permit as required under this chapter shall post the permit in a conspicuous place and manner on the premises.

3. Notwithstanding any provision to the contrary, any property owner or lessee, may apply for a temporary construction surface parking lot permit for a property that is temporarily being used for parking in connection with an adjacent construction project, as determined by the Building Commissioner, for which a valid building permit with an estimated cost greater than three hundred thousand dollars ($300,000.00) has

been issued. Such temporary construction surface parking lot permits shall be valid for six (6) months at a time and can be renewed up to two (2) times during active construction of an adjacent project. In no event can a temporary construction surface parking lot be permitted for longer than a total of eighteen (18) months unless the Building Commissioner approves an extension. The application for a temporary construction surface parking lot permit must address and meet the requirements for a temporary construction surface parking lot shown in subsection A titled "Surface parking lot requirements" except for subsections 1, 2, 3, 4, 5, 6, 7, and 8. The temporary construction surface parking lot permit shall expire thirty (30) days after substantial completion of the construction project.

C. *Inspections.* Pursuant to Section 8.70.090 of the Revised Code, the Building Commissioner shall make or cause to be made an inspection at least once a year of every surface parking lot. The Building Commissioner is hereby empowered to make such inspections, to appoint designated inspectors to make said inspections, and all surface parking lots shall be open to the inspections of the Building Commissioner or the Building Commissioner's designees, as well as any member of the Police Department, or Neighborhood Improvement Specialist, at any time during the hours allowed by business and other reasonable times. The Building Commissioner shall maintain a record of security incidents taking place on the lot and include it with the inspection report.

D. *Revocation or Denial of Renewal.* The Building Commissioner may revoke an existing permit if any of the following deficiencies or conditions exist:

1. The property is included on the City's list of nuisance properties.

2. The surface parking lot is not being operated in compliance with the surface parking lot requirements described in subsection A of this section.

3. The physical improvements to the surface parking lot have deteriorated or are damaged and no longer function properly. If any of the above deficiencies or conditions have been determined to exist by the Building Commissioner, a letter of warning shall be sent to the permit holder for the surface parking lot no later than sixty (60) days prior to a proposed revocation or denial of renewal of the permit. In the event that the permit holder fails to adequately address the deficiencies or conditions described in the letter of warning, the Building Commissioner shall hold an administrative hearing to determine if the permit shall be revoked or renewal should be denied.

E. *Permit Revocation, Suspension, or Denial.* Following a decision of the Building Commissioner to revoke or suspend a permit, or to disapprove a new or renewal application, such permittee or applicant may seek review in a manner provided by law in Section 8.70.060 and 8.70.070 of the Revised Code of the City of St. Louis. If a permit is revoked by the Building Commissioner, the permit holder may not apply for a new permit for the same surface parking lot for a period of three months.

F. *Other Code Provisions.* All other sections of Chapter 8.70 of the Revised Code of the City of St. Louis that do not contradict this chapter's provisions shall apply to Surface parking lots.

G. *Authority to Prescribe Additional Rules and Regulations.* The Building Commissioner shall have the power to promulgate regulations as may be necessary and feasible for the carrying out of the intent of this chapter and the duties of the Commissioner that are not inconsistent with the provisions of this chapter. The rules and procedures shall be in writing and kept on file in the Building Commissioner's Office and posted to the City's website. In addition, all current surface parking lot permit holders will be promptly notified by certified mail and email of any changes.

H. *Enforcement.* This chapter shall be enforced by the Police Division in conjunction with the Building Commissioner. Consistent with Chapter 8.70 of the Revised Code of the City of St. Louis, the Building Commissioner may order barricades for any or all surface parking lots not in material compliance with the terms of this chapter.

I. *Contracts Authorized.* The Building Commissioner is hereby authorized to enter into contracts or add change orders to existing contracts to carry out the process authorized herein, and is hereby authorized to expend funds thereunder, with no other review, signature, or approval from any other City agency, board or department, except as provided by Charter, for website programming, and other such necessary related work, for the process created under this chapter.

J. *Severability.* If any provisions of this chapter shall be held to be invalid or unconstitutional, the remainder of this chapter shall not be affected thereby but shall remain in full force and effect.

(Ord. No. 71834, §§ 5—14, 4-6-2024, eff. 4-26-2025.)

8.70.040 Permit—Application—Plats.

The applicant shall also file three copies of a plat or drawing showing all information pertaining to the construction of new lots, indicating the intended plan for parking, the capacity, the location and type of attendants' shelter, the type of lighting equipment, the barrier alongside the public sidewalk and other public ways, and the kind of surface and drainage facilities. The plat is subject to the approval of the Building Commissioner.

Drainage facilities will require approval of the metropolitan sewer district on the three copies of plats submitted when an existing paved lot of more than three thousand square feet is to be repaved, expanded or otherwise improved.

All existing paved lots and new lots to be paved, that are less than three thousand square feet, do not require approval of the metropolitan sewer district on the three copies of plats submitted, but shall be required to comply with the drainage requirements of the building code. (1960 C., § 388.030(2); 1994 C., § 8.70.040; Ord. No. 55061, § 1(part), 1968.)

8.70.050 Permit—Issuance—Fee.

Upon issuance of a parking station permit, the Building Commissioner shall notify the Comptroller that a permit is issued and transmit a plat with each notification. The applicant with his application shall deposit with the Building Commissioner the sum of ten dollars to cover the cost of issuance of the parking station permit; provided, further, that under no condition shall the sum or any part thereof be refunded for the failure of the Building Commissioner to grant the permit for a parking station, except that the fee shall not be deemed to apply or to be applicable to parking lots or parking stations operated by a church solely and exclusively for church parking. (1960 C., § 388.030(3); 1994 C., § 8.70.050; Ord. No. 55061, § 1(part), 1968.)

8.70.060 Permit—Denial.

If the application for permit is denied by the Building Commissioner, the applicant may make written request for a hearing before the Board of Public Service. The board shall designate a day for the hearing, and after considering the evidence and arguments submitted, the Board may direct either that the permit be issued or the action of denial be affirmed. (1960 C., § 388.150(part); 1994 C., § 8.70.060; Ord. No. 55061, § 1(part), 1968.)

8.70.070 Permit—Suspension or revocation—Hearing.

The Building Commissioner may refer any permit heretofore issued to the Board of Public Service with the recommendation that a hearing be held to determine whether the permit should be suspended or revoked. The Board shall designate a day for the hearing, and after considering the evidence and arguments submitted, may suspend or revoke the permit and license heretofore issued, upon proof of any of the following:

A. The operator has knowingly made any false or materially incorrect statement in his application;

B. The operator has made any charge for parking in excess of the rate posted on the required sign;

C. The operator fails to keep an attendant on duty during the times specified in his application; and

D. The operator has knowingly violated or knowingly permitted or countenanced the violation of any provision of this chapter. (1960 C., § 388.150(part); 1994 C., § 8.70.070; Ord. No. 55061, § 1(part), 1968.)

See also §§ 8.70.090, 8.70.110

8.70.080 Permit—Suspension or revocation—Barricading lot.

Upon suspension or revocation by the Board of Public Service the Police Department shall upon notice by the Building Commissioner barricade the parking lot until further notice. No lot barricaded as herein provided shall be used for the purposes of a parking station. (1960 C., § 388.150(part); 1994 C., § 8.70.080; Ord. No. 55061, § 1(part), 1968.)

8.70.090 Annual inspection fee.

The Building Commissioner shall make or cause to be made an inspection at least once a year of every parking station within the City to ascertain whether the station is operated within the provisions of this chapter. An annual inspection fee shall be payable on the first day of January each year in accordance with the capacity of the parking station as follows:

A. Under ten cars, seven dollars;

B. Ten to fifty cars, fifteen dollars;

C. All over fifty cars, twenty dollars.

Except these fees shall not be deemed to apply or be applicable to parking lots or parking stations operated by a church solely and exclusively for church parking.

All inspection fees shall be paid within thirty days of billing date after which time they shall become delinquent, which shall because for revocation of the

parking station permit. (1960 C., § 388.040; 1994 C., § 8.70.090; Ord. No. 55932, § 2, 1971; Ord. No. 55080, § 2, 1968; Ord. No. 55061, § 1(part), 1968.)

8.70.100 Signs.

Each operator shall display in a prominent location a sign clearly visible to motorists bearing:

A. The name of the parking station;

B. The usual hours of operation;

C. The highest daily or hourly rate schedule, if applicable;

D. The highest night or special event rate schedule, if applicable;

E. The number of the parking station permit issued for the station; and

F. The hour an attendant is normally on duty.

Where a single rate is charged or where a daily or hourly rate is charged, the highest rate in each category shall be posted in figures that shall be not less than four inches in height. If any nightly or special event rate exceeds the hourly or daytime rate, then this rate shall be posted and the figures for each of these rates shall be of the same size as those used to post daily and hourly rates. All other parking rates shall be posted legibly in a prominent location.

Nothing in any ordinance regulating the location of signs shall prohibit the erection of a sign not internally illuminated and not exceeding fifteen square feet in area, nor five feet in its longest dimension to comply with the requirement for identification of a parking station by sign. All such signs shall be erected and maintained in accordance with the building code. (1960 C., § 388.050; 1994 C., § 8.70.100; Ord. No. 55061, § 1(part), 1968.)

8.70.110 Sidewalks and ground maintenance.

Operators of parking stations, or open lots shall pave and surface with concrete, bituminous or other approved materials. Operators shall provide a concrete, bituminous or other approved material, a barrier at least six inches above grade. The barriers shall be located inside the property line and adjacent to the public sidewalk, public way or adjacent properties. The pavings and barriers provided on the locations shall be maintained in good and safe condition at all times.

The surface of such areas shall be kept clear of trash and broken glass and the parking spaces shall be clearly striped and marked.

No vehicles shall be parked as to extend over the public way or adjacent property; and no vehicle shall be driven over or upon the public way or adjacent property except for entrance to and exit from the parking station, or the driveways provided for such purpose, and repeated violations of this section shall be grounds for revocation of the parking station permit.

When located in districts zoned for residential purposes, the area used for parking shall not extend beyond the building line established by ordinance for the block in which the parking station is located. (1960 C., § 388.060; 1994 C., § 8.70.110; Ord. No. 55061, § 1(part), 1968.)

8.70.120 Lighting—Required.

Those parking stations regularly operated for nighttime use shall be equipped with adequate lights to permit drivers of vehicles to have reasonable access to all portions of the parking station during hours of darkness. In no case shall the intensity of illumination be less than two-tenths footcandle per square foot of parking surface. Lights shall be arranged to reflect the light away from all adjoining dwellings. Where lots are not provided with artificial illumination, adequate barricades shall be provided at each entrance. (1960 C., § 388.070; 1994 C., § 8.70.120; Ord. No. 55061, § 1(part), 1968.)

8.70.130 Lighting—Required.

No owner or operator, or employee, agent or servant thereof, of a public or private parking lot shall permit the use of the parking lot during the period between dusk and dawn for the public or private parking of motor vehicles unless the parking lot is illuminated with not less than one-tenth of one watt of illumination for each square foot of parking area; provided that minimum light intensity shall not apply to areas temporarily shaded by motor vehicles or other movable objects. (1994 C., § 8.70.130; Ord. No. 51787, § 1, 1963.)

8.70.140 Lighting—Attendants on duty.

The provisions of Section 8.70.130 shall not be applicable to those parking lots who have on duty an attendant at all times when the parking lot is being used or operated for the parking of motor vehicles during the period between dusk and dawn. (1994 C., § 8.70.140; Ord. No. 51787, § 2, 1963.)

8.70.150 Driveways.

In the case of parking stations established and curb cuts made after April 17, 1968, the location of driveways shall be subject to the approval of the Director of Streets. Not more than two driveways on any one street shall be permitted unless the frontage of the parking

station exceeds four hundred feet, in which event one additional driveway may be permitted for each additional one hundred feet of such frontage; and no driveway shall exceed thirty feet in width. (1960 C., § 388.080; 1994 C., § 8.70.150; Ord. No. 55061, § 1(part), 1968.)

8.70.160 Compliance with building code.

All parking stations shall comply with the provisions of the building code applicable to such facilities. (1960 C., § 388.090; 1994 C., § 8.70.160; Ord. No. 55061, § 1(part), 1968.)

8.70.170 Illegal use of cars.

It shall be unlawful for the owner, operator or attendant of any parking lot to drive, or cause to be driven, any parked motor vehicle through or upon the streets of the City without the consent of the owner or person parking the car. (1960 C., § 388.100; 1994 C., § 8.70.170; Ord. No. 55061, § 1(part), 1968.)

8.70.180 Change of rates.

No operator shall make any daily or hourly charge for sorting or parking any motor vehicle in excess of that posted upon the required sign. No increase in daily or hourly rates shall be permitted until the change is posted upon the signs required by Section 8.70.100. (1960 C., § 388.110; 1994 C., § 8.70.180; Ord. No. 55061, § 1(part), 1968.)

8.70.185 Ticket to be issued.

The operator of a parking station whereon motor vehicles are parked for a fee shall issue a parking station ticket to the owner of or person parking said motor vehicle. The parking station ticket shall have the name and address of the parking lot clearly printed thereon. (1960 C., § 388.115; 1994 C., § 8.70.185; Ord. No. 57086, § 1, 1975.)

8.70.190 Egress.

The operator of a parking station is required to provide immediate egress to a public street or alley to all vehicles using the parking station either by the use of marked lanes which shall not be used for the parking of automobiles thereon, or by providing an attendant present at all times during the hours of operation to remove vehicles blocking or impeding the egress of any particular vehicle using the parking station at the request of the driver of the particular vehicle desiring egress from the parking station. (1960 C., § 388.120; 1994 C., § 8.70.190; Ord. No. 55061, § 1(part), 1968.)

8.70.200 Liability—Bond.

Each operator or attendant shall be liable for any damage to any motor vehicle stored or parked in his parking lot, by or through his own negligence or that of his employees. This liability shall not apply while the vehicle is under the control of the owner. This provision shall have no application to loss of or damage to personal property left or contained in motor vehicles, the liability for which may be disclaimed, in the parking ticket, provided a sign giving notice to that effect is posted on the parking lot.

Failure to satisfy any final judgment for damages to or loss of any parked vehicle arising from the aforementioned liability within sixty days after its final rendition, shall operate to automatically revoke the permit. Thereafter, the permit of such operator shall not be renewed until a bond or certificate of insurance in the sum of two thousand dollars is obtained. Bonds are to be approved by the City Counselor and shall run to the City for the benefit of any person who may receive injuries, and for the benefit of any person, partnership, association or corporation who may claim redress for the property damage or theft, resulting from the negligent operation or maintenance of the parking lot. The bond shall remain in full force and effect for the full period of time for which the permit is effective. In lieu of the bond, the application may be accompanied by a certificate of insurance in a like amount, which to the satisfaction of the City Counselor, will be adequate to satisfy any judgments for the aforementioned hazards. (1960 C., § 388.130; 1994 C., § 8.70.200; Ord. No. 55061, § 1(part), 1968.)

8.70.210 Illegal use of parking station.

A. It shall be unlawful for the owner, operator or attendant of any parking lot to permit the use of the parking lot or portion thereof for the purpose of vending, selling, offering for sale or dispensing of merchandise; provided, that it shall not be unlawful for the owner, operator or attendant of a parking station or parking lot to rent or lease an individual space or individual spaces therein, on a daily basis, to allow persons to place on such parking station or parking lot motor vehicles or other items of personal property for purposes of sale. Parking areas used for this purpose shall not be subject to the provisions of Section 8.70.180.

B. Such operator shall be required to pay a one dollar ($1.00) license fee for each parking stall, defined as each 11 ft. x 20 ft. space, exclusive of aisles for traffic,

or as so marked. Such license shall be for a six (6) month period. Except that if, due to the nature of the item(s) sold, another form of license is required, then that other form of license shall be obtained. (1960 C., § 388.140; 1994 C., § 8.70.210; Ord. No. 57853, §§ 2, 3, 1979; Ord. No. 55061, § 1(part), 1968.)

8.70.220 Enforcement.

This chapter shall be enforced by the Police Department in conjunction with the Building Commissioner. (1960 C., § 388.160; 1994 C., § 8.70.220; Ord. No. 55061, § 1(part), 1968.)

8.70.230 Additional rules and regulations.

The Building Commissioner shall have the authority to promulgate rules and regulations as may be necessary for carrying out the provisions of this chapter. The rules and regulations shall be in writing and kept on file in the Building Commissioner's Office. (1960 C., § 388.180; 1994 C., § 8.70.230; Ord. No. 55061, § 1(part), 1968.)

Chapter 8.72

PAWNBROKERS

For secondhand dealers, see Ch. 8.82

RSMo:

RSMo Ch. 367 (2016) Pawnbrokers

McQuillin:

24.335 Moneylending and pawnbrokers

Sections:

8.72.010 Defined.
8.72.020 License—Required—Affidavit.
8.72.030 License—Application.
8.72.050 License—Separate for each place of business.
8.72.060 License—Revocation.
8.72.070 Bond.
8.72.080 Register—Required.
8.72.090 Register—Inspection.
8.72.100 Dealing with minors.
8.72.110 Hours.
8.72.120 Loans on parts of article.
8.72.130 Agents.
8.72.140 Photographs of customers.
8.72.150 Serial or identifying numbers.
8.72.160 Limits on number of licenses issued.

8.72.010 Defined.

Any person who loans money on deposit of personal property, or who deals in the purchase of personal property on condition of selling the same back again at a stipulated price, or who makes a public display at his place of business of the sign generally used by pawnbrokers to denote their business: Three gilt or yellow balls, or who publicly exhibits a sign of "money to loan on personal property or deposit," is hereby declared to be a pawnbroker. (1948 C., Ch. 49, § 1; 1960 C., § 700.010; 1994 C., § 8.72.010; Ord. No. 70813, § 6(8.72.010), 7-16-2018.)

8.72.020 License—Required—Affidavit.

No person shall do business as a pawnbroker in the City without having first obtained a license therefor. The license shall conform to those now in use as provided by this chapter, with a form of affidavit attached thereto, which the applicant shall subscribe and make oath that he will faithfully carry out the provisions of this chapter. (1948 C., Ch. 49, § 2; 1960 C., § 700.020; 1994 C., § 8.72.020; Ord. No. 70813, § 6(8.72.020), 7-16-2018.)

8.72.030 License—Application.

Every application for a license hereunder shall be made in writing to the License Collector and shall state where the business is to be carried on. Before any license shall be issued, the License Collector shall procure from a police officer designated by the Chief of Police to review such application, an endorsement on the back of the application therefor:

A. That in their opinion the applicant has a good moral character;

B. That the applicant has installed a proper camera and agreed to use the equipment to photograph every person and receipt or pawn ticket given to such person in connection with all loans and purchases of all articles effected or made by him, and to make the photographs available to any law enforcement officer upon request;

C. That the applicant has agreed not to accept as collateral security or to purchase any camera, radio, television set, lawn mower, typewriter, adding machine, calculating machine, copying machine, duplicating machine, tape recorder, tape player, cash register, still or moving picture projector or offset projector, dictating machine, record player, electric buffer, electric polisher, electric floor waxer, unless the item shall have plainly visible thereon the manufacturer's serial number or

other identifying insignia; (1948 C., Ch. 49, § 3; 1960 C., § 700.031; 1994 C., § 8.72.030; Ord. No. 70813, § 6(8.72.030), 7-16-2018; Ord. No. 69096, § 3, 2-23-2012; Ord. No. 57502, § 1, 1978; Ord. No. 55784, § 2(part), 1971.)

For photography requirements, see § 8.72.140

For serial or identifying numbers, see § 8.72.150

Cases:

City ordinance requiring that no pawnbroker's license be issued without endorsement by the police commissioners that the applicant had "good moral character" and requiring that applicant install a "proper camera" and photograph customers and pawn tickets, upheld as reasonable regulation. *Liberman v. Cervantes,* 511 S.W. 2d 835 (1974). An ordinance requiring pawnbrokers' records to be kept and available for examination by police officers and requiring photographs of customers to be taken and made available to such officers was held a valid exercise of the city's police power. *City of St. Louis v. Lieberman,* 547 S.W. 2d 452 (1977).

McQuillin:

24.335 Moneylending and pawnbrokers

8.72.050 License—Separate for each place of business.

No pawnbroker shall be allowed to have more than one place for transacting the business of a pawnbroker without having first obtained a license for each place of business. (1948 C., Ch. 49, § 11; 1960 C., § 700.110; 1994 C., § 8.72.050; Ord. No. 70813, § 6(8.72.050), 7-16-2018.)

8.72.060 License—Revocation.

The License Collector of the City shall have power and authority to revoke any license issued under this chapter for any willful violation by a licensed pawnbroker of any of the provisions or conditions contained in this chapter. The license shall be revoked only after the licensee shall have been notified in writing at his place of business of the violations complained of and shall have been afforded a reasonable opportunity to have a hearing thereon before the License Collector. (1960 C., § 700.150; 1994 C., § 8.72.060; Ord. No. 70813, § 6(8.72.060), 7-16-2018; Ord. No. 55784, § 2(part), 1971.)

8.72.070 Bond.

Every person to whom a license shall be granted to carry on the business of a pawnbroker shall annually enter into bond to the City, with good and sufficient security, to be approved by the License Collector, in the penal sum of one thousand dollars, conditioned that he will duly observe all ordinances as may be passed or in force respecting pawnbrokers. (1948 C., Ch. 49, § 5; 1960 C., § 700.050; 1994 C., § 8.72.070; Ord. No. 70813, § 6(8.72.070), 7-16-2018.)

8.72.080 Register—Required.

Every pawnbroker shall keep a handwritten and/or electronic register of all loans and purchases of all articles effected or made by him which register shall show the date of all loans or purchases, and the names of all persons who have left any description of property on deposit as a collateral security or as a delivery on sale thereof. Opposite the name and date shall be the person's age and motor vehicle operator's or chauffeur's license number, or other identification of public record designated in a list of such items established by the License Collector; a full description of all property purchased or received on deposit as collateral security, the manufacturer's identifying insignia or serial number if applicable, the time when the loan falls due, the amount of purchase money or the amount loaned and the interest charged and the picture number. In addition to this, he shall give the party negotiating or selling, a plain written or printed ticket for the loan, and a plain written or printed receipt of the articles purchased having on each a copy of the entries required by this chapter to be kept in his register. For the ticket or receipt he shall not be entitled to make any charge. The ticket or receipt shall contain the following information:

A. A description of the tangible personal property subjected to the security interest to secure payment of the loan;

B. The name and address of the pledgor, the pledgor's description, and the driver's license number, military identification number, identification certificate number, or other official number capable of identifying the pledgor;

C. The date of the transaction;

D. The amount of cash advanced or credit extended to the pledgor;

E. The amount of the pawn service charge;

F. The total amount which must be paid to redeem the pledged goods on the maturity date;

G. The maturity date of the pawn transaction; and

H. A statement to the effect that the pledgor is not obligated to redeem the pledged goods, and that the pledged goods may be forfeited to the pawnbroker sixty

days after the specified maturity date. (1948 C., Ch. 49, § 6; 1960 C., § 700.061; 1994 C., § 8.72.080; Ord. No. 70813, § 6(8.72.080), 7-16-2018; Ord. No. 55784, § 2(part), 1971.)

8.72.090 Register—Inspection.

The register required by Section 8.72.080, including any register kept in an electronic database, shall at all times be open to the inspection of appropriate law enforcement officials. With respect to any Register maintained on paper, the pawnbroker shall provide the St. Louis Metropolitan Police Department, on a monthly basis, a copy of such register and a list of all tangible personal property accepted during the preceding month. The Chief of Police shall set the date on which such documents shall be due and shall establish such rules and regulations as may be required. (1948 C., Ch. 49, § 7; 1960 C., § 700.070; 1994 C., § 8.72.090; Ord. No. 70813, § 6(8.72.090), 7-16-2018; Ord. No. 64878, § 2, 2000.)

8.72.100 Dealing with minors.

No pawnbroker shall receive by way of pledge or pawn any goods, articles or things whatever from a minor at any time. (1948 C., Ch. 49, § 8; 1960 C., § 700.080; 1994 C., § 8.72.100; Ord. No. 70813, § 6(8.72.100), 7-16-2018.)

RSMo:

RSMo 568.070 (2016) Dealers or employees not to deal with minors

8.72.110 Hours.

No pawnbroker shall receive by way of pledge or pawn any goods, articles or things whatever from any person between the hours of eight p.m. and seven a.m. (1948 C., Ch. 49, § 9; 1960 C., § 700.090; 1994 C., § 8.72.110; Ord. No. 70813, § 6(8.72.110), 7-16-2018.)

8.72.120 Loans on parts of article.

No pawnbroker shall make any loan on the separate or divided part of any article. (1948 C., Ch. 49, § 10; 1960 C., § 700.100; 1994 C., § 8.72.120; Ord. No. 70813, § 6(8.72.120), 7-16-2018.)

8.72.130 Agents.

It shall be unlawful for any person to act as agent for a pawnbroker at any other place than the place of business stated in the application for a license. (1948 C., Ch. 49, § 12; 1960 C., § 700.120; 1994 C., § 8.72.130; Ord. No. 70813, § 6(8.72.130), 7-16-2018.)

8.72.140 Photographs of customers.

No pawnbroker shall accept any article or property as collateral security, or purchase any article or property unless he shall make a photograph of the person from whom the article or property is being received along with the receipt or pawn ticket given to the person; nor shall any pawnbroker refuse to deliver the photograph to any law enforcement officer upon request in connection with a specific item of stolen property, within one year following the date the photograph is taken. Every pawnbroker shall display a notice to his customers in a prominent place to the effect that he is required to photograph every person pawning or selling an item to him, by City ordinance. (1960 C., § 700.130; 1994 C., § 8.72.140; Ord. No. 70813, § 6(8.72.140), 7-16-2018; Ord. No. 55784, § 2(part), 1971.)

Cases:

An ordinance requiring pawnbrokers' records to be kept and available for examination by police officers and requiring photographs of customers to be taken and made available to such officers was held valid exercise of the city's police power. *City of St. Louis v. Lieberman,* 547 S.W. 2d 452 (1977).

8.72.150 Serial or identifying numbers.

No pawnbroker shall accept as collateral security or purchase any camera, radio, television set, lawn mower, typewriter, adding machine, calculating machine, copying machine, duplicating machine, tape recorder, tape player, cash register, still or moving picture projector or offset projector, record player, dictating machine, electric buffer, electric polisher, or electric floor waxer, unless said item shall have plainly visible thereon the manufacturer's serial number or other identifying insignia. (1960 C., § 700.140; 1994 C., § 8.72.150; Ord. No. 70813, § 6(8.72.150), 7-16-2018; Ord. No. 55784, § 2(part), 1971.)

8.72.160 Limits on number of licenses issued.

No new license for operating the business of pawnbroker shall be issued when the issuance thereof would increase the number of such licenses outstanding and in force at that time to more than one per each 30,000 inhabitants residing within the City according to the last Decennial Census of the United States. Neither the sale, reissuance, transfer or conveyance of an existing license to a qualified person, made pursuant to this chapter, nor the renewal of an existing license, shall be considered a new license for purposes of this section. (1994 C., § 8.72.160; Ord. No. 70813, § 6(8.72.160), 7-16-2018; Ord. No. 63461, § 1, 1995; Ord. No. 59222, § 1, 1984.)

Chapter 8.74

PHOTOGRAPHERS

Sections:

8.74.010 **Classification—Definitions.**

8.74.020 **Studio photographer license—Required.**

8.74.040 **Transient photographer license—Required.**

8.74.060 **Certificates—Register.**

8.74.010 Classification—Definitions.

For the purpose of this chapter, photographers are classified as studio photographers and transient photographers.

"Studio photographer" means any person maintaining a studio within the City for the purpose of taking, personally or through his agents, the photographs of person who shall be accepted by the photographer within the studio or elsewhere, and every person maintaining in any one established place within the City, complete equipment for the taking of photographs, including all finishing processes, whether inside or outside of such place.

All persons who are not included in the above definition taking photographs for compensation within the City are transient photographers. (1948 C., Ch. 13, § 74; 1960 C., § 620.010; 1994 C., § 8.74.010; Ord. No. 48911, § 1(part), 1958.)

8.74.020 Studio photographer license—Required.

No person shall engage in the business of studio photographer in the City without having first obtained a license to do so. (1948 C., Ch. 13, § 75; 1960 C., § 620.020; 1994 C., § 8.74.020.)

8.74.040 Transient photographer license—Required.

No person shall engage in the business of transient photographer in the City without first having obtained a license to do so. (1948 C., Ch. 13, § 77; 1960 C., § 620.040; 1994 C., § 8.74.040.)

8.74.060 Certificates—Register.

The License Collector of the City shall issue to each person obtaining a license, a certificate to the effect that such person has been licensed by the City as a studio photographer or transient photographer, as the case may be, for the period as shall be covered by the license tax herein provided.

The License Collector shall keep a separate register of license studio photographers and licensed transient photographers. (1948 C., Ch. 13, § 79; 1960 C., § 620.060; 1994 C., § 8.74.060.)

Chapter 8.75

PLUMBERS

Sections:

8.75.010 **Advertising regulation.**

8.75.020 **False representation.**

8.75.010 Advertising regulation.

A. It shall be unlawful for a plumber licensed by the City to place an advertisement or message in any advertising media, which advertisement or message offers the services of the plumber to the public, if the advertisement or message fails to clearly state the City plumbing license number of the plumber.

B. Any violation of this section shall be punishable by a fine not to exceed $250.00 for the first offense and not less than $250.00 nor more than $500.00 for a second offense committed within any 12-month period. (1994 C., § 8.75.010; Ord. No. 57169, §§ 1, 2, 1976.)

8.75.020 False representation.

A. It shall be unlawful for any mechanic, artisan or other person whether functioning as a natural person, in a partnership, one doing business under a fictitious name, or acting in a corporate capacity or otherwise, but who is not licensed as a plumber by the City, to hold himself out as being available to perform any plumbing work, for which a licensed plumber is required, in any advertising media or publications containing specialty or compartmentalized sections offering plumbing services for which a licensed plumber is required.

B. Any violation of this section shall be punishable by a fine not to exceed $250.00 for the first offense and not less than $250.00 nor more than $500.00 for a second offense committed within any 12-month period. (1994 C., § 8.75.020; Ord. No. 57124, §§ 1, 2, 1976.)

Chapter 8.75A

PRIVATE SECURITY PERSONNEL

Sections:

8.75A.010 **License required.**

8.75A.020 **Employer's responsibility.**

8.75A.030 Penalty for violation.

8.75A.010 License required.

No person shall act as a private watchman, private policeman, courier, private security officer, corporate security advisor or similar security personnel without first obtaining a license from the Board of Police Commissioners. (1994 C., § 8.75A.010; Ord. No. 62939, § 1, 1993.)

8.75A.020 Employer's responsibility.

No person, partnership, corporation or other organization shall employ or use any person as a private watchman, private policeman, courier, private security officer, corporate security advisor or similar security personnel, unless such person shall be currently licensed for such employment or use by the Board of Police Commissioners. No individual or entity shall direct, require or permit any private watchman, private policeman, courier, private security officer, corporate security advisor or similar security personnel to perform security functions not specifically authorized by that person's license issued by the Board of Police Commissioners. (1994 C., § 8.75A.020; Ord. No. 62939, § 2, 1993.)

8.75A.030 Penalty for violation.

Violation of the provisions of this chapter shall, upon conviction, be punishable by a fine of not more than five hundred ($500.00) dollars for each offense, and each day such violation exists shall be deemed a separate offense. (1994 C., § 8.75A.030; Ord. No. 62939, § 3, 1993.)

Chapter 8.76

PUBLIC GARAGES

For parking stations, see Ch. 8.70

RSMo:

RSMo 301.280 (2016) Public garage keepers, duties

City Counselor Ops.: 8477, 8519

Sections:

8.76.010 Defined.
8.76.020 License—Required.
8.76.030 License—Application.
8.76.040 License—Tax.
8.76.050 License—Tax.
8.76.060 Gross receipts report—Required.
8.76.070 Gross receipts report—Delinquent.
8.76.080 Exemptions.
8.76.090 Penalty for violation.

8.76.010 Defined.

For the purpose of this chapter, "public garage" means a place of business where motor vehicles are housed or stored for any period of time, for persons other than the owner or operator of the place of business whether the place of business be enclosed in a building or partly so, or located on or beneath a building or both, or on or beneath any other open area or both, or in any combination of these designations, and for which housing or storing any fee is charged. This definition shall not be construed to include apartment houses or other nontransient residential buildings which provide parking facilities exclusively for permanent tenants and their guests. (1960 C., § 157.010; 1994 C., § 8.76.010; Ord. No. 48891, § 1, 1958.)

8.76.020 License—Required.

It shall be unlawful to engage in the business of operating a public garage as herein defined, without first having obtained a license from the License Collector to do so. (1960 C., § 157.020; 1994 C., § 8.76.020; Ord. No. 48891, § 2, 1958.)

City Counselor Ops.: 9424

McQuillin:

26.115 Licensing of garages

8.76.030 License—Application.

Every person, firm or corporation now engaged in, or desiring to engage in the business of operating a public garage as herein defined, before a license therefor is issued, shall file with the License Collector an application containing the following statements and documents:

A. The location of the building, area, or both to be used in the business;

B. The name and place of residence of the applicant;

C. If the applicant is a firm or a corporation, the names and addresses of the principal officers of the firm or corporation;

D. If the location is an open area without any building thereon used for the housing or storing of motor vehicles, the total dimensions thereof and the maximum number of motor vehicles (automobiles) the area can accommodate;

E. If the location contains any building, the application shall also state the number of floors to be used

for the housing or storing of motor vehicles, including those beneath the street level, if any, and also including any roof tops or roof tops to be so used, together with the maximum number of motor vehicles (automobiles) the floor or floors, roof top or roof tops can accommodate;

F. A schedule of fees to be charged which schedule shall be refiled from time to time in case of change in fees so that it shall remain current at all times;

G. A written certificate of permission from the Building Commissioner certifying the fact that the public garage, if conducted in a building is in compliance with the requirements of the building code, the comprehensive zoning ordinance, and the parking stations regulation ordinance, Chapter 8.70, and in case the public garage is to be conducted in an open area, the certificate shall be obtained from the Building Commissioner of the City certifying that the garage is in compliance with the building code, the comprehensive zoning ordinance, and the parking stations regulations ordinance, Chapter 8.70, and if the business is to be conducted both in a building and upon an open area or any combination of those described in Section 8.76.010, the certificate shall recite that the above-mentioned requirements, both as to buildings and open areas, have been complied with and that fact shall be certified by the Building Commissioner;

H. Other information the License Collector may lawfully require. (1960 C., § 157.030; 1994 C., § 8.76.030; Ord. No. 52775, § 1, 1964; Ord. No. 48891, § 3, 1958.)

City Counselor Ops.: 9273

8.76.040 License—Tax.

Every person, firm or corporation engaging in the business of operating a public garage for the storing of motor vehicles shall pay to the City, as a license tax, a sum equal to five percent of the gross receipts from the business. (1960 C., § 156.040; 1994 C., § 8.76.040; Ord. No. 48891, § 4, 1958.)

8.76.050 License—Tax.

Beginning on July 1, 1974, there is imposed on every person, firm or corporation engaged in the business of operating a public garage for the storage of motor vehicles, a license tax equal to the sum of five percent of the gross receipts of the business. (1960 C., § 157.045; 1994 C., § 8.76.050; Ord. No. 56778, § 1(part), 1974.)

8.76.060 Gross receipts report—Required.

It is made the duty of every person, firm or corporation engaged in the public garage business as defined in Section 8.76.010 to file with the Comptroller of the City quarterly on or before July 31, October 31, January 31 and April 30 of each year, a sworn statement of gross daily receipts of the person, firm or corporation for the business for the quarterly period ending with the preceding month. The payment of the tax due which shall be a sum equal to five percent of the gross receipts reported, shall accompany the return and shall be made payable to the License Collector of the City. The Comptroller shall examine the accuracy of the statement and propriety of payment remitted and shall certify to the License Collector of the City the amount of tax due by the person, firm or corporation engaged in the business herein described and shall forward to him amount received in payment for the tax. The Comptroller may issue rules and regulations not inconsistent with the provisions of this section which he may deem necessary to ensure proper compliance. (1960 C., § 157.050; 1994 C., § 8.76.060; Ord. No. 56778, § 1(part), 1974; Ord. No. 55792, § 1, 1971; Ord. No. 48891, § 5, 1958.)

8.76.070 Gross receipts report—Delinquent.

Whenever any person, firm or corporation is required by the terms of this chapter to file a report, statement, application or return with the Comptroller of the City or to make timely payment of license tax due within the time required by provisions of this chapter, and when the persons, firm or corporation fails to file the report, statement, application or return or to make timely payment of license tax due, the person shall pay a penalty of five percent of the tax due and payable for each month, or fraction thereof, with a maximum of twenty-five percent, that the report, statement, application or return or payment of license tax due remains delinquent. This penalty shall be in addition to any other penalties or forfeitures otherwise provided. (1960 C., § 157.055; 1994 C., § 8.76.070; Ord. No. 56778, § 1(part), 1974.)

8.76.080 Exemptions.

A. The provisions of this chapter shall not apply to public garages not storing more than five motor vehicles for hire at one time.

B. Also exempt from the provisions of this chapter shall be parking garages operated by or on behalf of not-for-profit hospitals primarily for the convenience

of hospital patients, their visitors and hospital employees. (1960 C., §§ 157.060, 157.070; 1994 C., § 8.76.080; Ord. No. 57302, § 1, 1977; Ord. No. 48891, § 7, 1958.)

Editor's Note:

Ord. 57302 amended 1960 C. § 157.060 which section had previously been repealed by Ord. 52775.

8.76.090 Penalty for violation.

Any person, firm or corporation violating or causing to be violated, any of the provisions of this chapter shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined not less than five dollars nor more than five hundred dollars. (1994 C., § 8.76.090; Ord. No. 48891, § 8, 1958.)

Chapter 8.78

PUBLIC PHOTOGRAPHIC STUDIOS

For photographers, see Ch. 8.74

Sections:

8.78.010 Definitions.
8.78.020 License—Required.
8.78.030 License—Application—Contents.
8.78.040 License—Application—Fee.
8.78.050 License—Application—Referral to other departments.
8.78.060 License—Fees.
8.78.070 License—Effect of sale or transfer of studio.
8.78.080 License—Issuance.
8.78.090 Corporate licensee—Register—Reporting changes.
8.78.100 Corporate licensee—Exemptions.
8.78.110 Employee license—Required.
8.78.120 Employee license—Application—Contents.
8.78.130 Employee license—Application—Fee.
8.78.140 Employee license—Issuance.
8.78.150 Licenses—Application—Verification.
8.78.160 Licenses—Application—Hearing.
8.78.170 Licenses—Issuance—Denial.
8.78.180 Licenses—Change of name or location.
8.78.190 Licenses—Display.
8.78.200 Licenses—Revocation or suspension.
8.78.210 Licenses—Transfer.
8.78.220 Inspection.
8.78.230 Employment of minors.
8.78.240 Prohibited acts.
8.78.250 Solicitation of trade.
8.78.260 Lighting.
8.78.270 Booths and cubicles.
8.78.280 Entertainers.
8.78.290 Signs—Contents—Words.
8.78.300 Signs—Contents—Pictures.
8.78.310 Visibility of entertainment.
8.78.320 Advertising.
8.78.330 Counseling or assisting in violations.
8.78.340 Exemptions—Public agencies defined in Section 8.78.010.A.
8.78.350 Exemptions—Schools and theaters.
8.78.370 Penalty for violation.

8.78.010 Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

A. "Bona fide nonprofit clubs or organizations" means any fraternal, charitable, religious or benevolent, or any other nonprofit organization having a regular membership association primarily for mutual social, mental, political and civic welfare, to which admission is limited to members and guests and revenue accruing therefrom to be used exclusively for the benevolent purposes of the organization and which organization or agency is exempt from taxation under the internal revenue laws of the United States as a bona fide fraternal, charitable, religious, benevolent or nonprofit organization.

B. "Employee" means any and all persons who render any service whatsoever to the patrons or customers of a public photography studio and who receive compensation for such service.

C. "Entertainer" means any person who performs any act enumerated in this section for any compensation whatsoever.

D. "Entertainment" means any act, play, review, pantomime, scene, dance act, song, song and dance act, poetry recitation, reading, style show or modeling for photographing or graphic reproduction by any means whatsoever within a public photography studio as defined in this section.

E. "Operator" means any person operating a public photography studio, including, but not limited to, the owner or proprietor of the premises upon which it is located, and the lessee, sublessee, or mortgagee in possession.

F. "Person" means an individual, firm, partnership, joint adventure, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting as a unit, excepting the United States of America, the State of California, and any political subdivision of either thereof.

G. "Public photography studio" means an establishment to which patrons or members are invited or allowed to photograph or purportedly photograph or graphically reproduce in any manner persons or models.

H. "Theater" means a building, playhouse, room, hall or other place having a permanent stage upon which movable scenery is or may be placed and upon which theatrical or vaudeville or similar performances are given, with permanently affixed seats so arranged in proximity to the stage that a body of spectators may have an unobstructed view of the stage, the primary function of which is to serve as the locale of performances. (1960 C., § 725A.010; 1994 C., § 8.78.010; Ord. No. 70813, § 7(8.78.010), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.020 License—Required.

It shall be unlawful for any person to engage in, conduct or carry on, or permit to be engaged in, conducted or carried on in any premises in the City, the operation of a public photography studio, without first obtaining a license from the License Collector which license has been authorized for issuance by the Board of Public Service. (1960 C., § 725A.020; 1994 C., § 8.78.020; Ord. No. 70813, § 7(8.78.020), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.030 License—Application—Contents.

The application for a license to operate a public photography studio shall set forth the proposed place of business and facilities therefor and the name and address of each applicant. In addition to the foregoing, any applicant for a license shall furnish the following information:

A. The two previous addresses immediately prior to the present address of the applicant;

B. Written proof that the applicant is at least eighteen years of age;

C. Applicant's height, weight, color of eyes and hair;

D. Two portrait photographs at least two inches by two inches;

E. Business, occupation, or employment of the applicant for the three years immediately preceding the date of application;

F. All criminal convictions except minor traffic violations;

G. Other identification and information necessary to discover the truth and the matters hereinbefore specified as required to be set forth in the application;

H. If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation together with the names and residence addresses of each of the officers, directors, and each stockholder holding more than ten percent of the stock of the corporation. If the applicant is a partnership, the application shall set forth the name and the residence address of each of the partners, including limited partners. If one or more of the partners is a corporation, the provisions of this section pertaining to a corporate applicant apply.

I. Nothing contained in this section shall be construed to deny to the Board of Public Service the right to take the fingerprints and additional photographs of the applicant, nor shall anything contained herein be construed to deny the right of the Board of Public Service to confirm the height and weight of the applicant. (1960 C., § 725A.060; 1994 C., § 8.78.030; Ord. No. 70813, § 7(8.78.030), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.040 License—Application—Fee.

Every applicant desiring a license to maintain, operate or conduct a public photography studio shall file an application with the Board of Public Service upon a form provided by the Board of Public Service, and pay a filing fee of ten dollars which shall not be refundable. (1960 C., § 725A.040; 1994 C., § 8.78.040; Ord. No. 70813, § 7(8.78.040), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.050 License—Application—Referral to other departments.

The Board of Public Service, upon receiving an application for a public photography studio license, shall refer the application to the Building Department,

the Fire Department, and the City Planning Department, which departments shall inspect the premises proposed to be operated as a public photography studio and shall make written recommendations to the Board of Public Service concerning compliance with the codes that they administer. (1960 C., § 725A.120; 1994 C., § 8.78.050; Ord. No. 70813, § 7(8.78.050), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.060 License—Fees.

Every licensee who conducts or assists in conducting or permitting any public photography studio as defined herein shall pay to the License Collector a license fee of twenty-five dollars annually payable in advance. The license fee prescribed in this section is due and payable on a calendar year basis starting forty-five days after November 26, 1974, prorated with regard to the calendar year on a monthly basis. Fees for new licenses issued after January 1, 1975 or in any subsequent calendar year shall be prorated with regard to the calendar year on a monthly basis. (1960 C., § 725A.200; 1994 C., § 8.78.060; Ord. No. 70813, § 7(8.78.060), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.070 License—Effect of sale or transfer of studio.

Upon sale, transfer or relocation of a public photography studio, the license therefor shall be null and void unless approved as provided in Section 8.78.250; provided, however, that upon the death or incapacity of the licensee the public photography studio may continue in business for a reasonable period of time to allow for an orderly transfer of the license. If the licensee is a corporation, a transfer of twenty-five percent of the stock ownership of the licensee will be deemed to be a sale or transfer and the license therefor shall be null and void unless approved as provided in Section 8.78.250; provided, however, that the provision shall not apply to a licensee corporation, the stock of which is listed on a stock the Security Exchange Commission unless approved as provided in Section 8.78.250. (1960 C., § 725A.180; 1994 C., § 8.78.070; Ord. No. 70813, § 7(8.78.070), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.080 License—Issuance.

The Board of Public Service may authorize the License Collector to issue a license within fourteen days following a hearing if all requirements for a public photography studio described in this chapter are met and the License Collector may issue a license to all persons who apply to perform public photography studio services unless the Board of Public Service finds:

A. The operation as proposed by the applicant if permitted would not have complied with all applicable laws, including, but not limited to, the building, zoning, housing and fire codes of the City;

B. The applicant and any other person who will be directly engaged in the management and operation of a public photography studio has been convicted of any of the following offenses or convicted of an offense without the state that would have constituted any of the following offenses if committed within the state:

1. An offense involving the use of force and violence upon the person of another that amounts to a felony;

2. An offense involving sexual misconduct with children;

3. Obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution, or pandering.

The Board of Public Service may refuse to authorize issuance of any license if it shall appear that the character of the business is not a proper or suitable place in which to conduct or maintain the business or calling or the applicant requesting the license does not warrant the issuance thereof.

The Board of Public Service may authorize issuance of a license to any person convicted of any of the crimes described in Subsection B.1 if they find the conviction occurred at least three years prior to the date of the application and the applicant has had no subsequent such convictions. (1960 C., § 725A.130; 1994 C., § 8.78.080; Ord. No. 70813, § 7(8.78.080), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.090 Corporate licensee—Register—Reporting changes.

Any corporation holding a license under this chapter shall maintain a stock register at the principal office of the corporation in St. Louis and the stock register shall be available to the Board of Public Service for inspection. The corporation shall report to the Board in writing any of the following:

A. Issuance or transfer of any shares of stock to any person where the issuance or transfer results in the person owning ten percent or more of the corporate stock;

B. Change in any of the corporate officers which are required by state law;

C. Change of the members of the Board of Directors.

The report shall be filed with the Board of Public Service within thirty days after the issuance or transfer of corporate stock, change in corporate officers, or change in members of the Board of Directors, as the case may be. The provisions of this section shall not apply to any of the following:

A. A corporation, the stock of which is listed on a stock exchange in the City of New York, State of New York;

B. A bank, trust company, financial institution or title company to which a license is issued in a fiduciary capacity;

C. A corporation which is required by the law to file periodic reports with the Securities and Exchange Commission. (1960 C., § 725A.090; 1994 C., § 8.78.090; Ord. No. 70813, § 7(8.78.090), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.100 Corporate licensee—Exemptions.

The provisions of Section 8.78.030.A through F relating to requirements for corporate applicants shall not apply to any of the following:

A. A corporation, the stock of which is listed on a stock exchange in the City of New York, State of New York;

B. A bank, trust company, financial institution or title company to which application is made or to whom a license is issued in a fiduciary capacity;

C. A corporation which is required by law to file periodic reports with the Securities and Exchange Commission. (1960 C., § 725A.080; 1994 C., § 8.78.100; Ord. No. 70813, § 7(8.78.100), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.110 Employee license—Required.

It shall be unlawful for any person, as defined in Section 8.78.010.B, to perform any service for a customer of a public photography studio without first securing a license from the License Collector which license has been authorized for issuance by the Board of Public Service. (1960 C., § 725A.030; 1994 C., § 8.78.110; Ord. No. 70813, § 7(8.78.110), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.120 Employee license—Application—Contents.

The employee of a public photography studio filing for a license shall furnish the following information:

A. Name;

B. Residence address;

C. Public photography studio in which the employee is currently working;

D. Two previous addresses immediately prior to the present address of the applicant;

E. Applicant's weight, height, color of eyes and hair;

F. Written proof that applicant is at least eighteen years of age;

G. Two portrait photographs at least two inches by two inches;

H. Previous employment of the applicant for three years immediately preceding the date of application;

I. All criminal convictions except minor traffic violations;

J. Other identification and information necessary to discover the truth of the matters specified in this section;

K. Nothing contained in this section shall deny the Board of Public Service the right to take the fingerprints and additional photographs of the applicant, nor shall anything contained in this section deny the right of the Board of Public Service to confirm the height and weight of the applicant. (1960 C., § 725A.070; 1994 C., § 8.78.120; Ord. No. 70813, § 7(8.78.120), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.130 Employee license—Application—Fee.

Every applicant for an employee license for a public photography studio shall file an application with the Board of Public Service on a form provided by the Board of Public Service and pay a filing fee of ten dollars which shall not be refundable. (1960 C., § 725A.050; 1994 C., § 8.78.130; Ord. No. 70813, § 7(8.78.130), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.140 Employee license—Issuance.

A. The Board of Public Service may authorize the License Collector to issue a license within fourteen days following a hearing unless they find that the applicant has been convicted of any of the following offenses or if

convicted of an offense without the state that would have constituted any of the following offenses if committed within the state:

1. A felony not involving sexual misconduct with children, obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution or pandering;

2. An offense involving sexual misconduct with children;

3. Obscenity, keeping or residing in a house of ill fame, solicitation of a lewd or unlawful act, prostitution, or pandering.

B. The Board of Public Service may authorize issuance of a license to any person convicted of any of the crimes enumerated in Subsection A. if they find the conviction occurred at least three years prior to the date of the application and the applicant has had no subsequent such convictions. (1960 C., § 725A.140; 1994 C., § 8.78.140; Ord. No. 70813, § 7(8.78.140), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.150 Licenses—Application—Verification.

Every application for a license under this chapter shall be verified as provided in the Missouri Rules of Civil Procedure for the verification of pleadings. (1960 C., § 725A.100; 1994 C., § 8.78.150; Ord. No. 70813, § 7(8.78.150), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.160 Licenses—Application—Hearing.

When an application is filed for a license under this chapter, the Board of Public Service shall fix a time and place for a public hearing thereon. Not less than ten days before the date of the hearing, the Board of Public Service shall cause to be posted a notice of the hearing in a conspicuous place on the property in which or on which the proposed public photography studio is to be operated. The posting of notice shall be carried out by the Board of Public Service, and the applicant shall maintain the notice as posted for the required number of days. (1960 C., § 725A.110; 1994 C., § 8.78.160; Ord. No. 70813, § 7(8.78.160), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.170 Licenses—Issuance—Denial.

Upon notification from the Board of Public Service that a license for a public photography studio or a license for an employee of a public photography studio is authorized to be issued to any person, corporation, or other legal entity, the License Collector may issue said license. The annual license fee for a license for a public photography studio shall be twenty-five dollars. The annual license fee for a license for an employee of a public photography studio shall be ten dollars. In the event of denial, notification and reasons for denial shall be set forth in writing and shall be sent to the applicant by means of certified mail or hand delivery. An appeal may be taken by any aggrieved party to the Circuit Court of the City. The Circuit Court of the City shall follow the procedure for judicial review of administrative determinations not requiring a hearing under RSMo 536.150. A licensee under this chapter may obtain an annual renewal of his license from the License Collector without further application to or action by the Board of Public Service. However, the applicant for renewal shall annually file with the License Collector, before receiving the renewed license, a signed statement of the licensee that there has been no change in the information as provided in the licensee's original application with the Board of Public Service. If, however, a change has occurred, the applicant for a renewal license must state the changes in a new application to the Board of Public Service. A majority of the Board may approve the application for renewal without the appearance of the licensee before the Board; provided, however, that the Board may require the licensee to appear before it and to furnish additional information it deems necessary.

Whenever a majority of the Board of Public Service for good cause refuses to renew a license, it shall notify the licensee of its decision and the reason therefor and shall further inform the licensee that he is entitled to a formal hearing before the Board concerning the renewal. The licensee must file a request for a formal hearing within fourteen days after the date of the Board's refusal to renew. Thereafter, the Board's refusal to renew shall be final and nonappealable. After a formal hearing, a majority of the Board may affirm or modify its decision as it deems necessary. (1960 C., § 725A.150; 1994 C., § 8.78.170; Ord. No. 70813, § 7(8.78.170), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.180 Licenses—Change of name or location.

No person granted a license pursuant to this chapter shall operate under any name or conduct his business under any designation for any location not specified in his license. (1960 C., § 725A.170; 1994 C., § 8.78.180; Ord. No. 70813, § 7(8.78.180), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.190 Licenses—Display.

Every person to whom or for whom a license shall have been granted pursuant to the provisions of this chapter shall display said license in a conspicuous place within the public photography studio so that the same may be readily seen by persons entering the premises. (1960 C., § 725A.180; 1994 C., § 8.78.190; Ord. No. 70813, § 7(8.78.190), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.200 Licenses—Revocation or suspension.

Any license issued for a public photography studio or an employee of a public photography studio may be revoked or suspended by the Board of Public Service, after a public hearing before the Board of Public Service, where it is found that any of the provisions of this chapter are violated or where the licensee or any employee of the licensee, has been convicted of any offense found in Section 8.78.140.A through C, or where the establishment is proven to be in violation of any state statute or of any provision of this Code, relating to the Health Department or health regulations.

The Board of Public Service, before revoking or suspending any employee license, shall give the employee at least ten days' written notice of the examination into his conviction record and the opportunity for a public hearing before the Board of Public Service, at which hearing the Board of Public Service shall determine the relevant facts regarding the occurrence of the conviction. (1960 C., § 725A.160; 1994 C., § 8.78.200; Ord. No. 70813, § 7(8.78.200), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.210 Licenses—Transfer.

No license shall be transferable except with the written consent of the Board of Public Service. An application for a transfer shall be in writing and shall be accompanied by a filing fee of ten dollars. The written application for a transfer shall contain the same information as requested herein for initial application for a license. (1960 C., § 725A.210; 1994 C., § 8.78.210; Ord. No. 70813, § 7(8.78.210), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.220 Inspection.

The Board of Public Service shall from time to time and at least twice a year, make an inspection of each public photography studio in the City for the purposes of determining that the provisions of this chapter are complied with. (1960 C., § 725A.190; 1994 C., § 8.78.220; Ord. No. 70813, § 7(8.78.220), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.230 Employment of minors.

It shall be unlawful for any owner, proprietor, manager or other person in charge of any public photography studio to employ any person who is not at least eighteen years of age. (1960 C., § 725A.170; 1994 C., § 8.78.230; Ord. No. 70813, § 7(8.78.230), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.240 Prohibited acts.

Every person is guilty of a misdemeanor who, while acting as an entertainer in a public photography studio as defined in this chapter:

A. Exposes his or her genitals, pubic hair, buttocks, natal cleft, perineum, anal region or pubic hair region; or

B. Exposes or employs any device, costume or cover which gives the appearance of or simulates the genitals, pubic hair, buttocks, natal cleft, perineum, anal region or pubic hair region; or

C. Exposes any portion of the female breast at or below the areola thereof. (1960 C., § 725A.220; 1994 C., § 8.78.240; Ord. No. 70813, § 7(8.78.240), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.250 Solicitation of trade.

No operator or employee of a public photography studio shall permit or allow or cause any person or employee to solicit trade on the public sidewalk at or near the entrance to the public photography studio or shall engage in such activity. (1960 C., § 725A.230; 1994 C., § 8.78.250; Ord. No. 70813, § 7(8.78.250), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.260 Lighting.

Every public photography studio shall be lighted throughout to an intensity of at least twelve footcandles during all hours of operation. (1960 C., § 725A.240; 1994 C., § 8.78.260; Ord. No. 70813, § 7(8.78.260), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.270 Booths and cubicles.

It shall be unlawful for any operator of a public photography studio to maintain or construct any booth, cubicle, room or rooms, compartment or stall that is so arranged that the entire interior portion of same is not visible from the exterior of the booth, cubicle, room or rooms, compartment or stall. No booth, cubicle, room,

compartment or stall shall be so maintained or constructed so that the entrance to same may be blocked by a door or curtain or similar device. (1960 C., § 725A.250; 1994 C., § 8.78.270; Ord. No. 70813, § 7(8.78.270), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.280 Entertainers.

A person shall be deemed to be an entertainer if the person acts in that capacity without regard to whether or not the person is paid any compensation by the management of the establishment in which the activity is performed. (1960 C., § 725A.260; 1994 C., § 8.78.280; Ord. No. 70813, § 7(8.78.280), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.290 Signs—Contents—Words.

No sign or signs which, in whole or in part, advertise any public photography studio and which sign or signs use the words "nude," "topless," "bottomless," "naked," or words of like import, shall be maintained, erected, used or placed upon or adjacent to the outside of any building where it is visible from public streets or from adjacent buildings and premises, the purpose of which sign is intended to attract, lure or entice customers. (1960 C., § 725A.270; 1994 C., § 8.78.290; Ord. No. 70813, § 7(8.78.290), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.300 Signs—Contents—Pictures.

No sign or signs, paintings, photographs, pictorial representations, or any other visual means shall be maintained, erected, used or placed upon or adjacent to the outside of any building, or in connection with any premises therein, if it shows, reveals or depicts, in whole or in part, the following:

A. The actual or simulated displaying of the pubic hair, anus, vagina, penis, vulva, buttocks, or any other genitalia of the human body;

B. Any portion of the nude female breast below the top of the areola. (1960 C., § 725A.280; 1994 C., § 8.78.300; Ord. No. 70813, § 7(8.78.300), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.310 Visibility of entertainment.

No operator of a public photography studio shall permit or cause to be permitted or allow any entertainment as defined in this chapter in such a manner that the entertainment would be visible at any time from the street, sidewalk or highway. (1960 C., § 725A. 290; 1994 C., § 8.78.310; Ord. No. 70813, § 7(8.78.310), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.320 Advertising.

No operator of a public photography studio shall place or cause to be placed or distribute or cause to be distributed any advertising brochures, pamphlets, handbills, posters, announcements, or the like, that depict the human form or portions thereof, or contain wording in a manner that such depictions of the human form or portions thereof or words would violate Section 8.78.240 if the pictorial representation were on a sign upon or adjacent to a public photography studio. (1960 C., § 725A.300; 1994 C., § 8.78.320; Ord. No. 70813, § 7(8.78.320), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.330 Counseling or assisting in violations.

Every person is guilty of a misdemeanor who permits, counsels or assists any person to violate any provision of this chapter. (1960 C., § 725A.310; 1994 C., § 8.78.330; Ord. No. 70813, § 7(8.78.330), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.340 Exemptions—Public agencies defined in Section 8.78.010.A.

The provisions of Section 8.78.020 relating to requirement for a license shall not apply to a public photography studio operated by any public agency or by any educational or social agency, or any bona fide charitable organization as defined in Section 8.78.010.A. (1960 C., § 725A.320; 1994 C., § 8.78.340; Ord. No. 70813, § 7(8.78.340), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.350 Exemptions—Schools and theaters.

This chapter shall not apply to any of the following:

A. A school or institution approved by the City Board of Education or a State Board of Education acting pursuant to Missouri statutes;

B. A theater, concert hall or similar establishment which is primarily devoted to theatrical performances;

C. Any act authorized or prohibited by state statute. (1960 C., § 725A.330; 1994 C., § 8.78.350; Ord. No. 70813, § 7(8.78.350), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

8.78.370 Penalty for violation.

Every person, except those persons who are specifically exempted by this chapter, whether acting as an individual, owner, employee of the owner, operator or employee of the operator, or whether acting as a mere helper for the owner, employee or operator, or acting as

a participant or worker in any way, of a public photography studio without first obtaining a license and paying a license fee to do so from the City or shall violate any of the provisions of this chapter shall be guilty of a misdemeanor. Upon conviction the person shall be punished by a fine not to exceed five hundred dollars or by imprisonment for a period not to exceed ninety days or by both fine and imprisonment. (1960 C., § 725A.340; 1994 C., § 8.78.370; Ord. No. 70813, § 7(8.78.370), 7-16-2018; Ord. No. 56858, § 1(part), 1974.)

Chapter 8.80

REAL ESTATE AGENTS AND BROKERS

Sections:

8.80.010 Defined.
8.80.020 License—Required.

8.80.010 Defined.

A real estate broker or agent means any person:

A. Who, for a valuable consideration, shall act, or offer to act, as agent for any person for the purpose of buying, selling, leasing, appraising, exchanging, renting, receiving or collecting rents of any real estate or interest therein or improvement thereon; or

B. Who, for a valuable consideration, loans or offers to loan money, as agent for another, on any real estate or interest therein or improvement thereon; or

C. Any person who shall advertise by sign or otherwise, or hold themselves out as an agent for any of the purposes set forth in this section. (1948 C., Ch. 13, § 82; 1960 C., § 690.010; 1994 C., § 8.80.010.)

8.80.020 License—Required.

It shall be unlawful for any person to advertise, hold himself out as or to act as a real estate broker or agent without first having obtained a license. (1948 C., Ch. 13, § 83; 1960 C., § 690.020; 1994 C., § 8.80.020.)

RSMo:

RSMo 339.010—39.170 (2016) Real estate brokers and salesmen

Chapter 8.82

SECONDHAND AND JUNK DEALERS

McQuillin:

24.351 et seq. Junk and secondhand dealers, places and yards

26.121 et seq. Junk and secondhand dealers, stores and yards

Sections:

Part I. Secondhand Dealers

8.82.010 Defined.
8.82.020 License—Required.
8.82.030 License—Tax.
8.82.040 License—Application.
8.82.045 License—Petition to be filed.
8.82.050 Photograph, transaction forms and holding period.
8.82.051 License—Revocation for violation.
8.82.060 Purchase of certain articles.
8.82.065 Purchase of cellular phones and other electronic communication devices.
8.82.070 Cooperating with law enforcement.
8.82.090 Reporting certain persons or articles.
8.82.100 Sale of secondhand vehicles—Brakes.
8.82.110 Sale of secondhand vehicles—Certificate—Contents.
8.82.120 Sale of secondhand vehicles—Certificate—False.
8.82.130 Sale of secondhand vehicles—Exception.
8.82.135 Recycling operations exempted.
8.82.137 Penalty clause.

Part II. Junk Dealers

8.82.140 Definitions.
8.82.150 License—Required.
8.82.160 License—Junk peddler.
8.82.170 License—Junk merchant.
8.82.180 License—Application.
8.82.190 License—Revocation.
8.82.200 License—Plate.
8.82.210 Record of purchases.
8.82.220 Reserved.
8.82.230 Purchases from minors—Hours of operation.
8.82.240 Limitations on business.
8.82.250 Posting regulations.
8.82.260 Misdemeanor declared.

PART I. SECONDHAND DEALERS

8.82.010 Defined.

Any person doing business in the City, who purchases and/or sells goods of any kind or description, having once been used or transferred from the manufacturer to the dealer and then received into the possession of third parties whether the same consists of cloths, carpets, clothing, rags, iron or other metals, furniture or articles of household utensils, articles of personal use, electronics, computers, cellular phones, electronic communication devices, apparel, or of jewelry of any kind or description, or items made in whole or part of gold, silver or precious metals or gemstones, including bullion, or coins shall be a secondhand dealer. (1948 C., Ch. 57, § 2; 1960 C., § 680.010; 1994 C., § 8.82.010; Ord. No. 69332, § 1, 12-19-2012; Ord. No. 63478, § 2(part), 1995; Ord. No. 57916, § 2(part), 1979.)

8.82.020 License—Required.

No person shall engage in the business of secondhand dealer without first obtaining a license from the License Collector and complying with the provisions of this chapter. (1960 C., § 680.011; 1994 C., § 8.82.020; Ord. No. 63478, § 2(part), 1995; Ord. No. 55790, § 2(part), 1971.)

8.82.030 License—Tax.

Every secondhand dealer, as defined in Section 8.82.010 shall pay the graduated business license tax pursuant to Chapter 8.07 of the Revised Code of the City of St. Louis. (1960 C., § 680.012; 1994 C., § 8.82.030; Ord. No. 63478, § 2(part), 1995; Ord. No. 55790, § 2(part), 1971.)

8.82.040 License—Application.

Every application for a license shall be made in writing to the License Collector and shall state where the business is to be carried on. Before any license shall be issued, the License Collector shall procure from a police officer designated by the Chief of Police to review such application, an endorsement on the back of the application therefore.

A. That in their opinion the applicant has a good moral character and shall not have been convicted within the ten years preceding the date of application for license or for renewal of license or be on parole or a fugitive from justice for any federal, state or municipal offense involving:

1. Drugs or narcotics;
2. Robbery;
3. Burglary;
4. Auto theft;
5. Stealing;
6. Receiving stolen property;
7. Embezzlement;
8. Extortion;
9. Forgery;
10. Gambling;
11. Bribery;
12. Perjury;
13. Any weapons offense; or
14. Any crime of violence.

B. That the applicant has agreed not to purchase any camera, radio, television set, lawn mower, typewriter, addition machine, calculating machine, copying machine, duplicating machine, tape recorder, tape player, digital recorder, cash register, DVD player, movie player, game system console or device, GPS device, still or moving picture projector or offset projector, dictating machine, record player, cellular phone, electronic communication device, laptop or desktop computer, handheld computerized device, music player device, electric buffer, electric polisher, electric floor waxer, computer equipment and accessories, scanner, printer, fax or any item that is manufactured with a serial number or other identifying insignia, unless the item shall have plainly visible thereon the manufacturer's serial number or other identifying insignia.

C. That the applicant has a camera that will take a clear photograph of the seller and has agreed to use such camera to photograph every person, except as herein provided, in connection with all purchases and/or trade-in allowance of all articles by him, and to make such photographs available to any law enforcement officer or License Collector upon request. (1960 C., § 680.013; 1994 C., § 8.82.040; Ord. No. 69332, § 2, 12-19-2012; Ord. No. 69096, § 1, 2-23-2012; Ord. No. 63478, § 2(part), 1995; Ord. No. 57916, § 2(part), 1979; Ord. No. 55790, § 2(part), 1971.)

8.82.045 License—Petition to be filed.

In addition to the application and plat, the applicant for a secondhand dealer license shall also file in the Board of Public Service, together with the application and plat, a written petition in favor of the issuance of such license, signed by a majority of the persons, if any, occupying premises or conducting any business on the main surface floor within the prescribed petition circle drawn by a radius of five hundred feet plus one-half of

the width of the front of the premises, from the center of such premises projected to the streets. A neighborhood consent petition shall not be required for successive yearly renewal licenses for the same licensee on the same premises. (1994 C., § 8.82.045; Ord. No. 69103, § 1, 3-9-2012)

8.82.050 Photograph, transaction forms and holding period.

A. No secondhand dealer shall accept any article or property as full or part payment, or purchase any article or property unless he shall make a photograph of the person from whom such article is being received and attach such photograph to a transaction form which shall be completed at the time of the transaction. For jewelry of any kind or description, or items made in whole or part of gold, silver or precious metals or gemstones, including bullion or coins, a photograph of the item shall be taken and the information in the transaction form, as provided in Subsections B.1 through 9 of this section, shall be entered into the Law Enforcement Agency Data System ("LEADS") or any successor database approved by the St. Louis Police Department.

B. The transaction form shall include, but not be limited to, the following:

1. The date, time and place of the transaction.

2. The correct legal name, date of birth and place of residence, including City and state, of the seller.

3. A copy of the seller's driver's license, or if not available, a copy of the seller's military identification, passport or other approved state identification number or state identification card.

4. The amount paid for the property.

5. A photograph, taken by the secondhand dealer, of the transaction depicting a discernable likeness of the seller.

6. The home, business and cellular telephone number of seller.

7. The name of the employee handling the purchase.

8. The right thumbprint of the seller and, if the right thumbprint cannot be obtained, the left thumbprint shall be obtained and an explanation shall be provided as to why the right thumbprint was not available.

9. Any other information requested by St. Louis law enforcement authorities.

C. The requirement that the seller be photographed and thumb-printed shall not apply to any purchase or trade-in transaction which occurs at an auction or in the private house or office of the person selling said items but all other requirements as aforesaid shall remain in effect.

D. The photograph and transaction form shall be maintained by the secondhand dealer for a period of one year from the date of the transaction. No secondhand dealer shall refuse to deliver such photograph or transaction form to any law enforcement officer within one year following the date of the transaction. Every secondhand dealer shall display a notice to his customers in a prominent place to the effect that he is required to photograph and fingerprint every person selling or offering as full or part payment an item to him, by City ordinance.

E. At least sixty days prior to the destruction of a photograph or transaction form, the licensee shall notify, in writing, the Police Department of his intent to destroy such documents. The Police Department, at its option, shall request the licensee to turn over all said documents to the Police Department, and the licensee, upon said request, shall turn over all documents to the Police Department.

F. It shall be unlawful for any secondhand dealer who purchases and/or sells jewelry of any kind or description, or items made in whole or part of gold, silver or precious metals or gemstones, including bullion, or coins to sell, trade, melt down or in any way dispose of, alter, or destroy until forty-eight (48) hours after the date of its purchase. Upon written notice that the St. Louis Metropolitan Police Department have cause to believe an item has been stolen, the secondhand dealer shall retain the jewelry, or items made in whole or part of gold, silver or precious metals or gemstones, including bullion, or coins for any additional ten (10) days. (1960 C., § 680.032; 1994 C., § 8.82.050; Ord. No. 69332, § 3, 12-19-2012; Ord. No. 69096, § 2, 2-23-2012; Ord. No. 68812, § 2, 12-13-2010; Ord. No. 64311, § 2, 1998; Ord. No. 63478, § 2(part), 1995; Ord. No. 57916, § 2(part), 1979; Ord. No. 55790, § 2(part), 1971.)

8.82.051 License—Revocation for violation.

The License Collector of the City of St. Louis shall have power and authority to revoke any license issued under this chapter for any violation of a licensed secondhand dealer of any of the provisions or conditions

contained herein; provided such license shall be revoked only after the licensee shall have been notified in writing at his place of business of the violations complained of and shall have been afforded a reasonable opportunity to have a hearing thereon before the License Collector. (1960 C., § 680.033; 1994 C., § 8.82.051; Ord. No. 63478, § 2(part), 1995; Ord. No. 57916, § 2(part), 1979.)

8.82.060 Purchase of certain articles.

No secondhand dealer shall purchase any camera, radio, television set, lawn mower, typewriter, addition machine, calculating machine, copying machine, duplicating machine, tape recorder, tape player, digital recorder, cash register, DVD player, movie player, game system console or device, GPS device, still or moving picture projector or offset projector, dictating machine, record player, cellular phone, electronic communication device, laptop or desktop computer, handheld computerized device, music player device, electric buffer, electric polisher, electric floor waxer, computer equipment, scanner, printer, fax or any item that is manufactured with a serial number or other identifying insignia, unless the item shall have plainly visible thereon the manufacturer's serial number or other identifying insignia. (1948 C., Ch. 57, § 3; 1960 C., § 680.021; 1994 C., § 8.82.060; Ord. No. 69332, § 4, 12-19-2012; Ord. No. 63478, § 2(part), 1995; Ord. No. 55790, § 2(part), 1971.)

Cases:

Requirement of city ordinance that junk merchants keep a book of registration held valid. *City of St. Louis v. Baskowitz,* 201 S.W. 870 (1918).

8.82.065 Purchase of cellular phones and other electronic communication devices.

A. When purchasing cellular phones or other electronic communication devices, the secondhand dealer shall obtain the following information from the seller of the phone or device and shall, at the time of the purchase, enter the information into the Law Enforcement Agency Data System ("LEADS") or any successor database approved by the St. Louis Police Department:

1. A complete and accurate description of the cellular phone or electronic communication device taken, purchased or received by such merchant, including serial number, if any.

2. The date, time and place of the purchase.

3. The correct legal name, date of birth and place of residence, including City and state, of the seller.

4. A copy of the seller's driver's license, or if not available, a copy of the seller's military identification, passport or other approved state identification number or state identification card.

5. The amount paid for the property.

6. A photograph, taken by the secondhand dealer, of the transaction depicting a discernable likeness of the seller.

7. The home, business and cellular telephone number of seller.

8. The name of the employee handling the purchase.

9. The right thumbprint of the seller and, if the right thumbprint cannot be obtained, the left thumbprint shall be obtained and an explanation shall be provided as to why the right thumbprint was not available.

10. Any other information requested on the form.

B. No purchases shall be made from persons not of legal age.

C. When a police officer has reasonable cause to believe that the cellular phone or electronic communication device received by a secondhand dealer is stolen, the police officer may place a hold notice upon the suspected stolen property. The identified cellular phone or electronic communication device, which has a hold notice, shall be held by the secondhand dealer's place of business for sixty calendar days, unless released sooner, by authority of the policy chief or his designee. After sixty calendar days have passed, unless the police chief or his designee authorizes other disposition, the hold is automatically released and the secondhand dealer may dispose of the cellular phone or electronic communication device. (1994 C., § 8.82.065; Ord. No. 69332, § 5, 12-19-2012.)

8.82.070 Cooperating with law enforcement.

Every secondhand dealer and every person employed by such dealer in the conduct of their business shall allow any law enforcement officer or other official designated by the Chief of Police of the City of St. Louis to examine every part of the business premises at any time and shall allow the designee to examine, photograph, or copy any goods, articles, things, books or other records on the premises to determine compliance with this chapter and to search for and to place a hold upon any item that may be stolen property. (1994 C., § 8.82.070; Ord. No. 69332, § 6, 12-19-2012.)

8.82.090 Reporting certain persons or articles.

In case any suspicious or known dishonest person shall offer for sale to any secondhand dealer, his employee, agent or servant, any article of value or virtue and he has reason to believe from any circumstance that the same has been stolen or acquired by dishonest means, it shall be his duty to at once report the same to the Chief of Police or to the officer on the beat in which his place of business is located. Any failure to so report shall be deemed to be a misdemeanor. (1948 C., Ch. 57, § 5; 1960 C., § 680.040; 1994 C., § 8.82.090.)

8.82.100 Sale of secondhand vehicles—Brakes.

No person engaged in the business of selling secondhand motor vehicles shall, within the City, sell, offer or expose for sale any secondhand motor vehicle, except a motorcycle, unless the same shall be equipped with two sets of adequate brakes in good working order, or sell, offer or expose for sale any secondhand motorcycle unless the same is equipped with one set of adequate brakes in good working order. (1948 C., Ch. 57, § 6; 1960 C., § 680.050; 1994 C., § 8.82.100.)

8.82.110 Sale of secondhand vehicles—Certificate—Contents.

Every person engaged in the business of selling secondhand motor vehicles shall deliver to the purchaser of every vehicle a certificate describing the vehicle sufficiently for its identification and reciting that the vehicle is equipped with adequate brakes in good working order, signed by the person who signs the certificate transferring the title to the vehicle to the purchaser, if a certificate of title is made out at the time of the sale, otherwise it shall be signed by the person duly authorized to sign the certificate of title. The provisions of this section and Section 8.82.100 shall apply to a conditional sale when the vehicle sold is delivered to the purchaser. (1948 C., Ch. 57, § 7; 1960 C., § 680.060; 1994 C., § 8.82.110.)

8.82.120 Sale of secondhand vehicles—Certificate—False.

It shall be unlawful to sign or cause or permit another to sign a certificate as is provided for by Section 8.82.110, if the certificate contains any false statement as to the description of a secondhand motor vehicle, or as to the condition of the brakes thereof. (1948 C., Ch. 57, § 8; 1960 C., § 680.070; 1994 C., § 8.82.120.)

8.82.130 Sale of secondhand vehicles—Exception.

The provisions of Sections 8.82.100—8.82.120 shall not apply to motor vehicles operated wholly on tracks. (1948 C., Ch. § 9; 1960 C., § 680.080; 1994 C., § 8.82.130.)

8.82.135 Recycling operations exempted.

There is hereby specifically exempted from the regulations of secondhand dealers as set forth in Sections 8.82.010, 8.82.040, 8.82.050 and 8.82.051, the conducting of recycling operations of aluminum, glass and paper products by persons and organizations. (1994 C., § 8.82.135; Ord. No. 58160, § 1, 1980.)

8.82.137 Penalty clause.

A. Any person or business that is found to be in violation of any regulations set forth in this chapter shall be punished by a fine of not less than one dollar nor more than five hundred dollars, per violation, or by imprisonment for not more than ninety days or by both such fine and imprisonment.

B. In addition to the penalties described in this section, the City may revoke an occupancy permit issued for the business premises of any person or business that knowingly and willfully violates this chapter and shall revoke the secondhand dealer's license of any person or business who knowingly and willfully violates this chapter. (1994 C., § 8.82.137; Ord. No. 69332, § 8, 12-19-2012.)

Editor's Note:

Ord. No. 69332, § 8, adopted Dec. 19, 2012, set out provisions intended for use as § 8.82.140. Inasmuch as there were already provisions so designated, said section has been included herein as § 8.82.137 at the discretion of the editor.

PART II. JUNK DEALERS

8.82.140 Definitions.

The following words or phrases, as used in this part, are defined as follows:

A. "Junk merchant and junk shop" means any person engaged in the business of buying, selling, exchanging or dealing in old junk, bottles, siphons, old rope, secondhand plumbing materials, secondhand gas and electric fixtures, old rubber tires or other used or old articles commonly designated as "junk," and having a store, stand, junkyard, or place of business, is a junk merchant, and such stand, junkyard, store or place of business is a junk shop.

B. "Junk peddler" means any person engaged in the business of buying, selling, exchanging, or dealing in old junk, bottles, siphons, old rope, secondhand plumbing materials, secondhand gas and electric fixtures, old rubber tires or other used or old articles commonly designated as "junk" and having no stand, store or place of business. (1948 C., Ch. 57, § 10; 1960 C., § 681.010; 1994 C., § 8.82.140; Ord. No. 69013, § 1, 11-9-2011; Ord. No. 55783, § 2(part), 1971.)

Cases:

Ordinance regulating junk and secondhand dealers is a valid exercise of the city's police power. *City of St. Louis v. Baskowitz,* 201 S.W. 870 (1918).

One dealing chiefly in new bottles, but handling large quantities of old bottles, is a junk merchant as defined by ordinance. *City of St. Louis v. Baskowitz,* 201 S.W. 870 (1918).

8.82.150 License—Required.

No person shall engage in the business of junk peddler or junk merchant without first obtaining a license from the License Collector and complying with the provisions of this part. (1948 C., Ch. 57, § 11; 1960 C., § 681.020; 1994 C., § 8.82.150.)

8.82.160 License—Junk peddler.

Every junk peddler shall pay a license fee of ten dollars per year for each wagon or truck used in such business and five dollars per year for each pushcart used in such business. The license shall expire on June 30 of each year. Each license shall bear a number which shall correspond with the number on a license plate which shall be attached to the wagon, cart or vehicle used by the licensee in his business, as provided in this chapter. The license shall be available only to the person in whose name it is issued, and shall not be used by any person other than the original licensee. Any licensee who shall permit his license to be used by any other person, and any other person who shall use a license granted to another person, shall each be deemed guilty of a violation of this chapter. (1948 C., Ch. 57, § 12; 1960 C., § 681.030; 1994 C., § 8.82.160.)

8.82.170 License—Junk merchant.

Every junk merchant, as defined in this part, shall pay the annual license tax and the ad valorem tax and additional tax and shall be subject to all the requirements, provisions and penalties as provided for merchants in Chapter 8.56. Every junk merchant is hereby declared to be a merchant within the meaning of such provisions. (1948 C., Ch. 57, § 13; 1960 C., § 681.040; 1994 C., § 8.82.170.)

8.82.180 License—Application.

Application for licenses under this part shall be made in writing to the License Collector and shall state the name, age, description and address of the applicant and in the case of a junk merchant shall also state the name of the street and number of the store, stand, junkyard, or place of business stated herein. The License Collector, upon receipt of the application, shall make inquiry into the character of the applicant and shall not grant a license unless he is satisfied that the applicant therefor is a fit person to receive same. (1948 C., Ch. 57, § 14; 1960 C., § 681.051; 1994 C., § 8.82.180; Ord. No. 55783, § 2(part), 1971.)

8.82.190 License—Revocation.

The License Collector of St. Louis shall have the power and authority to revoke any license issued under this chapter for any willful violation by a licensed junk merchant or junk peddler or any of the provisions or conditions contained therein; provided, the license shall be revoked only after the licensee shall have been notified in writing at his place of business of the violations complained of and shall have been afforded a reasonable opportunity to have a hearing thereon before the License Collector. (1960 C., § 681.120; 1994 C., § 8.82.190; Ord. No. 55783, § 2(part), 1971.)

8.82.200 License—Plate.

The wagon, cart or vehicle used by any junk peddler or junk merchant in his business shall have affixed thereto in a prominent place, plainly visible, a metal license plate which shall be of a different color each year, and which shall have stamped thereon the words "junk peddler" or "junk merchant," as the case may be and his license number, for the purpose of identification. The plates shall be furnished by the City Register to the License Collector, who shall issue them without charge to the applicant for a license. (1948 C., Ch. 57, § 18; 1960 C., § 681.090; 1994 C., § 8.82.200.)

8.82.210 Record of purchases.

Every junk merchant shall keep a book in which shall be legibly written in the English language, at the time of every purchase, a general description of every article of every purchase made, the price paid for the article, the name, color, residence and other description sufficient to identify the person from whom the purchase was made, and when purchases are made from a

junk peddler, in addition to the above information the record of the purchase shall state the license number of the junk peddler. Every purchase shall be separately recorded in the book and shall bear a consecutive number commencing with the figure "one." This record shall at all reasonable hours be open to the inspection of any police officer or any person having a written order from the Chief of Police or License Collector. Upon written request of the Chief of Police or License Collector, the junk merchant shall furnish to the Chief of Police or License Collector a verified written statement of the portions of the record as the Chief of Police or License Collector may require. An exchange of any of the articles designated in this part as junk shall be recorded as a purchase and sale of the respective articles exchanged. (1948 C., Ch. 57, § 15; 1960 C., § 681.060; 1994 C., § 8.82.210.)

RSMo:

RSMo 407.305 (2016) Record of certain purchases

RSMo 407.300 (2016) Copper wire or cable, collectors and dealers to keep register

8.82.220 Reserved.

Editor's Note:

Ord. No. 69013, § 2, adopted Nov. 9, 2011, repealed § 8.82.220 which pertained to metal records and derived from § 681.061 of the 1960 Code and Ord. No. 55783, § 2 (part), 1971.

8.82.230 Purchases from minors—Hours of operation.

No junk peddler or junk merchant shall purchase any goods, articles or things whatsoever from any minor, at any time, or from any person whomsoever, between the hours of seven p.m. and seven a.m. (1948 C., Ch. 57, § 16; 1960 C., § 681.070; 1994 C., § 8.82.230.)

8.82.240 Limitations on business.

No junk peddler or junk merchant shall be licensed as a pawnbroker or dealer in secondhand articles in the City, nor shall any junk peddler or junk merchant make any loans upon any article designated herein as junk, nor receive the same as a pledge, pawn or security, nor shall any person purchase, sell, exchange or deal in any such articles without first complying with all the provisions of this part. (1948 C., Ch. 57, § 17; 1960 C., § 681.080; 1994 C., § 8.82.240.)

8.82.250 Posting regulations.

A copy of the regulations prescribed by this part shall be posted in a conspicuous place in every junk shop in the City, and it shall be the duty of the Register, upon request, to furnish copies of the regulations to every junk peddler and junk merchant in the City. (1948 C., Ch. 57, § 19; 1960 C., § 681.100; 1994 C., § 8.82.250.)

8.82.260 Misdemeanor declared.

Any person who shall engage in business as a junk peddler or junk merchant without a license as herein required, or any junk merchant who shall conduct business at any place other than that stated in his application for a license, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 57, § 20; 1960 C., § 681.110; 1994 C., § 8.82.260.)

Chapter 8.83

SERVICE STATIONS

Sections:

8.83.010 Findings.
8.83.020 Applicability of provisions.
8.83.030 Required services.
8.83.040 Sign to indicate no restroom available.
8.83.050 Damaging or vandalizing property prohibited.
8.83.060 Penalty for violation.

8.83.010 Findings.

The Board of Aldermen makes the following findings:

A. A number of new service stations have been built in the City which do not have facilities for providing compressed air and water for use in motor vehicles and which do not have restroom facilities which are open for use by the traveling public.

B. A number of older service stations which did have facilities for providing compressed air and water for use in motor vehicles and restroom facilities for use by the public have been demolished and replaced with new service stations which do not have such facilities available to the public.

C. Numerous service stations which do have facilities for providing compressed air and water for use in motor vehicles and restroom facilities have stopped making air and water available to the traveling public and have refused to allow the public to make use of their restrooms.

D. Some service stations which do make restroom facilities available for use by the public lock their

restroom facilities during nighttime hours, thereby preventing use of such facilities by the public during those hours.

E. Provision by service stations of compressed air for the purpose of inflating tires will reduce accidents caused by handling problems resulting from underinflated tires and will therefore promote the public safety, health, and welfare. Provision by service stations of water for purposes of filling radiators and windshield washing reservoirs will reduce breakdowns and help drivers see the road more clearly, thus reducing the potential for accidents, thereby promoting the public safety, health and welfare.

F. Public health, safety and welfare will be promoted by making the public aware of whether or not restroom facilities are available for use by the traveling public at a particular service station. (1994 C., § 8.83.010; Ord. No. 61968, § 1, 1990.)

8.83.020 Applicability of provisions.

The provisions of this chapter shall apply to all service stations within the City. For purposes of this chapter, a service station shall be defined as an establishment, having one or more fuel pumps, wherein a principle activity is offering for sale, to the traveling public, gasoline, diesel fuel or similar products used to provide locomotive power to motor vehicles. (1994 C., § 8.83.020; Ord. No. 61968, § 2, 1990.)

8.83.030 Required services.

All service stations shall offer the following amenities and services, which must be provided or offered on the premises of the station, to the traveling public during regular business hours:

A. A properly functioning water spigot and hose suitable for use by the traveling public for the servicing of motor vehicles and which is located so as to be readily accessible to the traveling public or, in the alternative, containers of fresh water which are made available to the traveling public for purposes of servicing motor vehicles.

B. Air compressors and attached hoses permitting motorists to replenish air loss from vehicle tires, together with appropriate gauges for measuring air loss. A reasonable charge may be levied by a service station owner or operator for the delivery of compressed air, and this charge may be collected by use of a coin-operated device for delivery of compressed air. (1994 C., § 8.83.030; Ord. No. 61968, § 3, 1990.)

8.83.040 Sign to indicate no restroom available.

All service stations which do not have restroom facilities available for use by the public shall display one sign with the following wording: "NO RESTROOMS AVAILABLE." Such sign shall be placed either in the window or attached to the wall of the premises as provided by law; provided, that no such sign shall be painted directly on a wall. The sign shall be lettered in a professional manner with letters three (3) inches in height. No other information or graphic shall appear on said sign, except that if a service station makes restroom facilities available for only a portion of the time period during which it is open for business, then such information may be specified on the sign in letters smaller than three (3) inches in height. (1994 C., § 8.83.040; Ord. No. 61968, § 4, 1990.)

8.83.050 Damaging or vandalizing property prohibited.

It shall be a violation for any person to vandalize, steal, intentionally destroy or damage, or remove from the premises any of the following items made available to, or provided for use by, the general public by the owner or operator of a service station: (A) toilet fixtures, urinals, sinks, other plumbing facilities, waste receptacles, towels, toilet tissue, soap, or soap receptacles; (B) water spigots, water hoses or containers of fresh water; or (C) air compressors and/or attached hoses. (1994 C., § 8.83.050; Ord. No. 61968, § 5, 1990.)

8.83.060 Penalty for violation.

Any person, firm, corporation or other entity which is found guilty of a violation of either Section 8.83.030 or 8.83.040 shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00). Each day during which a service station fails to comply with the provisions of Section 8.83.030 shall be deemed a separate violation. Any person found guilty of a violation of Section 8.83.050 shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). (1994 C., § 8.83.060; Ord. No. 61968, § 6, 1990.)

Chapter 8.83A

SHORT-TERM LENDING CODE

Sections:

8.83A.010 Legislative findings.
8.83A.020 Definitions.

8.83A.030 Applicability of other regulations; conflicting provisions.
8.83A.040 Permit required.
8.83A.050 Permit duration; renewal; fees.
8.83A.060 Inspections.
8.83A.070 Authority to prescribe additional regulations.
8.83A.080 Penalty for violation of Short-Term Lending Code.
8.83A.090 Alternative administrative citation fine for violation of Short-Term Lending Code.
8.83A.100 Judicial review of orders of Commissioner; stay of enforcement of orders.
8.83A.110 Severability.
8.83A.120 Contents of application.
8.83A.130 Criteria for issuance of permit.
8.83A.140 Approval or disapproval of application and hearing.
8.83A.150 Display of license or permit.
8.83A.160 Compliance with the Short-Term Lending Code and other regulations.
8.83A.170 Permittee's duties to adhere to a "Good Neighbor Plan."
8.83A.180 Referral to Alternative Financial Assistance
8.83A.190 Suspension, revocation, or denial.
8.83A.200 Renewal of permit.

8.83A.010 Legislative findings.

The Board of Aldermen finds and concludes the following:

A. That the lending and marketing practices of Short-Term Loan Establishments, as defined herein, can result in serious financial hardships to some of its citizens, particularly its elderly and low-income citizens, from which they cannot extract themselves; can perpetuate poverty; and can perpetuate the dependency upon public financial assistance, housing, health care and social services;

B. That the proliferation over the past several years of Short-Term Loan Establishments both in the City as a whole and, more particularly, in certain areas of the City, cause or contribute to the deterioration of certain of the City's commercial and residential areas;

C. That the patterns of this proliferation suggest the industry targets low-income citizens most likely to suffer financial hardship as a result of the lending practices and small-loan products offered by Short-Term Loan Establishments; and

D. That the further regulation of Short-Term Loan Establishments is necessary for the promotion and protection of: the public health, safety, and welfare of the City's citizens; the City's interests, and those of its citizens, in maintaining the quality of its commercial and residential neighborhoods; and the City's interests in maintaining its tax base. (1994 C., § 8.83A.010; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.020 Definitions.

The following words, when used in the Short-Term Lending Code, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commissioner means the Commissioner of the Building Division of the City of St. Louis or a person designated by the Commissioner.

Permittee means any individual, firm, association, corporation, partnership, association or organization holding a permit issued by the Commissioner pursuant to the Short-Term Lending Code to operate a Short-Term Loan Establishment.

Premises means the bounds of the enclosure where a Short-Term Loan Establishment conducts business and includes parking lots and other adjacent private property occupied by or used in connection with the business.

Short-Term Loan Establishment means an establishment which (a) engages in the business of providing money to customers on a temporary basis, wherein such loans are secured by post-dated check, paycheck, or car title, or (b) is registered as a lender under state or federal law. This classification does not include a state or federally chartered bank, savings and loan association, credit union, or mortgage broker or originator. This classification does not include nonprofit organizations exempt from taxes under Section 501(c)(3) of the Internal Revenue Code of 1986 as amended, nor does it include organizations certified as Community Development Financial Institutions by the U.S. Treasury. Further, this classification does not include the businesses of licensed pawnbrokers or establishments selling consumer goods, including consumables, where the loans or the cashing of checks or money orders are incidental to the main purpose of the business. This classification does include, but is not limited to, check cashing stores,

payday loan stores, and car title loan stores. (1994 C., § 8.83A.020; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.030 Applicability of other regulations; conflicting provisions.

A. In the event of a conflict between the provisions of the Short-Term Lending Code and other ordinances or other parts of the Revised Code of the City of St. Louis, the provisions of the Short-Term Lending Code shall control.

B. The permit and fees required by the Short-Term Lending Code shall be in addition to any other licenses and fees required by the Revised Code of the City of St. Louis.

C. The permit fees required by the Short-Term Lending Code are to defray the costs of investigating and processing the applications for the permits, of any enforcement efforts required by the Short-Term Lending Code, and to the public for the economic damage of a proliferation of short-term loans. (1994 C., § 8.83A.030; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.040 Permit required.

Within sixty (60) days of the effective date of this chapter, it shall be unlawful for any individual, firm, association, corporation, partnership, or organization:

A. To operate or maintain a Short-Term Loan Establishment in the City unless the owner, operator, or lessee thereof has applied for and obtained a Short-Term Loan Establishment permit from the City; or

B. To operate such business after such permit has expired or has been revoked or suspended by the City.

A permit shall be required for each location at which a Short-Term Loan Establishment operates in the City; even a location within another business operation. A permit shall be valid for a period of time of one calendar year (or the remaining portion of a calendar year) and must be renewed annually. This permit shall be in addition to any other permit or license required by other local, state, or federal government agencies. No permit shall be issued for any business seeking to operate at a location prohibited by any applicable local, state, or federal law, statute, ordinance, rule, or regulation; provided, however, that a business lawfully in existence on the date of adoption of such prohibition may be issued a permit if allowed by such provisions. (1994 C., § 8.83A.040; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.050 Permit duration; renewal; fees.

A. Permits for the operation of a Short-Term Loan Establishment shall be annual permits which expire on December 31 of each year. Each permit shall include the name of the permit holder and address of the premises. Permits in good standing on the date of their expiration shall be eligible for renewal. The application for a permit shall be accompanied by payment in full of the fee stated in this section, by cash, certified or cashiers check, or money order. No application shall be considered complete until the fee is paid. The fee shall not be refunded under any circumstances.

B. The fee for each permit shall be as follows:

1. New Short-Term Loan Establishment permit: $5,000.00 per year or $2,500.00 if less than six (6) months remain in the calendar year.

2. Renewal of Short-Term Loan Establishment permit: $5,000.00 per year.

C. No fees will be effective until approved by a simple majority of the City's electors. (1994 C., § 8.83A.050; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.060 Inspections.

The Commissioner is hereby empowered to appoint inspectors of Short-Term Loan Establishments, and all those premises shall be open to the inspections of the Commissioner, inspectors appointed by the Commissioner, any member of the Police Department, or that establishment's appointed Neighborhood Improvement Specialist at any time during the hours allowed for business and at other reasonable times. (1994 C., § 8.83A.060; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.070 Authority to prescribe additional regulations.

The Commissioner shall have the power to promulgate regulations as may be necessary and feasible for the carrying out of the intent of the Short-Term Lending Code and the duties of the Commissioner under the Short-Term Lending Code which are not inconsistent with the provisions of the Short-Term Lending Code. (1994 C., § 8.83A.070; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.080 Penalty for violation of Short-Term Lending Code.

It shall be unlawful for any person to violate any of the provisions of the Short-Term Lending Code. Upon conviction thereof, such person shall be fined not less than $100.00 and not more than $500.00, or be punished by imprisonment at the municipal correctional

institution or in such other place as provided by law for a period of time up to, and including, 180 days, or be punished by both such fine and imprisonment. Each day's violation of, or failure, refusal, or neglect to comply with, any provision of the Short-Term Lending Code shall constitute a separate and distinct offense. The penalties provided in this section are in addition to, and are separate from, any administrative actions by the Commissioner to suspend, revoke, or disapprove renewal of a permit issued under the Short-Term Lending Code. (1994 C., § 8.83A.080; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.090 Alternative administrative citation fine for violation of Short-Term Lending Code.

The Commissioner may impose administrative fines for violations of the Short-Term Lending Code pursuant to the procedures set out in Chapter 25.33 of the Revised Code of the City of St. Louis. (1994 C., § 8.83A.090; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.100 Judicial review of orders of Commissioner; stay of enforcement of orders.

Following the entry of an order by the Commissioner suspending or revoking a permit, or disapproving a new or renewal application for a permit, such permittee or applicant may seek judicial review in a manner provided by law. The Commissioner shall stay enforcement of such order for a period of time not to exceed 30 days pending the filing or final disposition of proceedings for judicial review. (1994 C., § 8.83A.100; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.110 Severability.

The various provisions of the Short-Term Lending Code are not interdependent; and, if any provisions of the Short-Term Lending Code shall be held to be invalid or unconstitutional, the remainder of the Short-Term Lending Code shall not be affected thereby but shall remain in full force and effect. (1994 C., § 8.83A.110; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.120 Contents of application.

Any person desiring to operate a Short-Term Loan Establishment shall make written application for a Short-Term Loan Establishment permit or the renewal thereof to the Commissioner or the Commissioner's designee. The application shall be signed by the applicant and notarized. All applications shall be submitted on a form supplied by the Commissioner and shall set forth at least the following:

A. The name, residence address, electronic mail address, home and cell telephone number, and date and place of birth of the applicant;

B. The business name, street address of the business premises, electronic mail address of the business, and telephone number of the business;

C. The names, residence addresses, residence and cell telephone numbers, and dates and places of birth of the following:

1. All partners, if the applicant is a partnership;

2. All members, if the applicant is a limited liability company;

3. All corporate officers and Commissioners and all shareholders with greater than a ten percent (10%) interest in the corporation, if the applicant is a corporation; and

4. All persons having an ownership interest in any other type of business entity or association.

D. Whether or not the applicant has been convicted of violating any provision of the Short-Term Lending Code; has been convicted of a felony, misdemeanor, infraction or ordinance violation involving moral turpitude, a breach of a fiduciary obligation, or crimes of physical violence or against property; or has ever had a permit issued under the Short-Term Lending Code revoked or suspended and, if so, the reason therefor;

E. Evidence and information of any kind tending to demonstrate that the permit being sought will be utilized in the applicant's business conducted in accordance with the provisions of the Short-Term Lending Code;

F. If the applicant is a Missouri corporation, a certificate of good standing issued by the Missouri Secretary of State not more than 30 days prior to the submittal of the application or, if a foreign corporation, a certificate of authority to do business issued by the Missouri Secretary of State not more than 30 days prior to the submittal of the application; and

G. Such further information as the Commissioner may reasonably require. (1994 C., § 8.83A.120; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.130 Criteria for issuance of permit.

The Commissioner shall investigate the application for a Short-Term Loan Establishment permit and

shall issue the permit authorized by the Short-Term Lending Code if the Commissioner finds that each of the following conditions is met without exception:

A. Applicant is current in all taxes, fees, and other amounts due to the City on any account, for any purpose;

B. The application is complete and appears to be truthful and accurate;

C. The application is accompanied by the required fee;

D. The location of the premises meets all applicable spacing, distance, and location requirements of the zoning ordinances, including those outlined in Section 26.08.384 of the Revised Code of the City of St. Louis;

E. The premises meets all other applicable health, safety, zoning, property maintenance, building and fire codes, and ordinances of the City;

F. The premises has a clean and adequate waiting area and adequate heating, ventilating, and air conditioning which is made available to customers or patrons;

G. Applicant has provided the Commissioner with a designated agent for service who can regularly be found in the City during normal business hours; and

H. Applicant has demonstrated to the Commissioner a "Good Neighbor Plan" which includes all requirements outlined in Section 23 of the Short-Term Lending Code as well as any other conditions that the Commissioner finds necessary or appropriate to ensure that the short-term loan establishment is not operated in a manner that will be detrimental to the public health, safety, or welfare, or that will result in the creation of a nuisance.

The Commissioner is authorized to make inspections of the Short-Term Loan Establishment's premises at reasonable times and hours of any day in which it is operating or is to be located for purposes of determining whether such Short-Term Loan Establishment fully complies with the provisions of the Short-Term Lending Code. (1994 C., § 8.83A.130; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.140 Approval or disapproval of application and hearing.

A. The application for a Short-Term Loan Establishment permit, or the renewal thereof, authorized under the Short-Term Lending Code shall be approved or disapproved within 30 days from the date of the Commissioner's determination that the application is complete, unless the applicant agrees in writing to an extension of that time period. If a permit application is disapproved, the Commissioner shall notify the applicant in person, or by registered or certified mail to the applicant's last known address, and shall state the basis for such disapproval.

B. If within ten (10) days after the Commissioner delivers notice to an applicant in person or mails notice to the applicant that the application has been disapproved, the applicant files with the Commissioner a written request for a hearing before the Commissioner on whether the applicant has satisfied the criteria set forth in this Section 16 of the Short-Term Lending Code; then, the Commissioner shall, within five days of receipt of a timely request, mail a notice of a hearing to the applicant, which shall include the date, time, and place for the hearing before the Commissioner. The date for the hearing shall be not less than 10 days, nor more than 40 days, following the filing of the request for a hearing under this section, unless the aggrieved party requesting the hearing agrees to extend the time for the hearing. (1994 C., § 8.83A.140; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.150 Display of license or permit.

Every individual, firm, corporation, partnership, organization, or association holding a permit under the Short-Term Lending Code as a Short-Term Loan Establishment shall post the permit in a conspicuous place and manner on the premises. (1994 C., § 8.83A.150; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.160 Compliance with the Short-Term Lending Code and other regulations.

It shall be the duty of a permittee to comply with all of the provisions of the Short-Term Lending Code, as well as the building codes, zoning, fire, health, safety, nuisances, and property maintenance ordinances of the City, and with all regulations issued by the Commissioner pertaining to Short-Term Loan Establishments. Failure to comply with the ordinances or regulations after written notification of noncompliance has been delivered to the permittee by the City may be a basis for suspension, revocation, or nonrenewal of the permit. (1994 C., § 8.83A.160; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.170 Permittee's duties to adhere to a "Good Neighbor Plan."

A. It shall be the affirmative duty of each permittee to adhere to a "Good Neighbor Plan," which shall include, at a minimum:

1. Post and enforce a no loitering policy on the premises, including parking areas and other exterior parts of the premises;

2. Post a notice printed in not less than 24-point bold type within 3 feet of each location within the premises at which a customer, borrower, or other member of the general public is invited or directed to stand or sit to either apply for a loan, to answer or ask questions, to review or sign transaction documents, to receive loan proceeds, to make payments or to inquire about, or apply for, the renewal or the rolling over of a loan, which sets out the following information: (i) the word "WARNING" in bold capital letters, (ii) that this establishment is a short-term loan establishment and is not a federally chartered bank, savings and loan association, or credit union, (iii) the interest rates and fees charged, (iv) the annual percentage rate equivalent of the aggregate of those interest rates and fees charged per $100.00 borrowed, (v) a computation of the amounts that would be paid on an original loan renewed or rolled-over after the expiration of its original term without any payment of either principal or interest each time, up to six times, (vi) a warning that default may result in loss of property used as security for the loan and garnishment of wages and checking and savings accounts, and (vii) notice of any state or federal rights to rescind the loan agreement;

3. Prevent public displays of indecency, prostitution, or solicitation for prostitution from taking place on the premises, whether in or out of public view at all times during the hours of operation;

4. Prevent disorderly conduct, disturbances of the public peace, and gambling from taking place on the premises at all times during the hours of operation;

5. Prevent any unlawful sale, distribution, delivery, or use of controlled substances, illegal drugs or narcotics on the premises at all times during the hours of operation;

6. Prevent any sale, distribution, delivery, or use of any alcoholic beverages of any kind on the premises at all times during the hours of operation;

7. Allow law officers, code enforcement officers, health officers, or other representatives of the City or other public agencies full access to the premises at any time during hours of operation for purposes of inspection to ensure compliance with the Short-Term Lending Code and other applicable laws;

8. Regularly inspect and maintain the premises and all adjacent sidewalks and alleys within 50 feet of the premises for purposes of removing any trash or litter found thereon;

9. Ensure that the licensee or a manager of the business is present at the premises at all times during its hours of operation; and

10. During the hours of operation, promptly report to the Police Department acts of indecency, prostitution or solicitation for prostitution, disorderly conduct, disturbances of the public peace, gambling, unlawful sale, distribution, delivery or use of controlled substances, illegal drugs or narcotics, and the sale, distribution, delivery, or use of any alcoholic beverages of any kind on the alleys, sidewalks, and streets adjacent to the premises.

B. The permit and the standards of operation, affirmative duties and other requirements of the Short-Term Lending Code shall apply to an entire business operation and its premises, regardless of the fact that some parts of the business operation, if conducted separately at a different location, would not be subject to a permit under the Short-Term Lending Code.

C. Failure to comply with the requirements of this section and all other requirements of the Short-Term Lending Code is unlawful. (1994 C., § 8.83A.170; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.180 Referral to Alternative Financial Assistance

It shall be the affirmative duty of each permittee to provide to all interested customers or patrons the current "Alternatives to Short Term Loans" guide, as provided by the office of Financial Empowerment and approved by the Treasurer of the City of St. Louis or other such guides that provide the same information. (1994 C., § 8.83A.180; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.190 Suspension, revocation, or denial.

A. Any permit issued under the provisions of the Short-Term Lending Code may be suspended or revoked or any permit may be denied by the Commissioner, after due notice and affording an opportunity for a hearing, for any violation of the provisions of the Short-Term Lending Code. Once said permit is suspended or revoked, notification shall be given immediately to the License Collector's Office. Within ten (10)

days after the denial, suspension or revocation of any permit issued under the Short-Term Lending Code, or for any other cause expressly allowed in the Short-Term Lending Code, any person aggrieved thereby may apply in writing to the Commissioner for a hearing thereon, and the Commissioner shall then promptly set a time and date for a hearing thereon.

B. Hearing procedures. The following procedures shall apply to all hearings conducted under this section:

1. The applicant, permittee, or an owner, as the case may be, shall have full right to be represented by counsel, to produce witnesses and other evidence, and to cross examine all witnesses who appear against him. Oral evidence shall be taken only upon oath or affirmation. All proceedings in such hearing shall be recorded and transcribed as required by law. The Commissioner may receive evidence relevant to the issues from the applicant, permittee, or from other sources.

2. If a hearing is held under the provisions of the Short-Term Lending Code, then the Commissioner shall issue findings of fact and conclusions of law, and an order wherein he may approve or disapprove an application, suspend or revoke a permit previously issued, or renew or refuse to renew a permit previously issued. The Commissioner's order shall be served upon the applicant or permittee, as the case may be, in person or by registered or certified mail to the applicant's or permittee's last known address. If the Commissioner is not able to serve the order upon the applicant, permittee, or applicant for renewal permit in the manner stated in this subsection, and any notice sent by mail is returned by the postal service, the Commissioner shall cause the order to be posted at the principal entrance of the business, and that posting shall be a valid means of service. The Commissioner's order shall also be posted for 30 days in the City's Building Division.

C. Unless otherwise provided in the Short-Term Lending Code, any applicant or any other person aggrieved by the decision of the Commissioner under the provisions of the Short-Term Lending Code may seek judicial review in a manner provided by law. The cost of a transcript of a hearing before the Commissioner shall be paid by the party requesting the transcript. (1994 C., § 8.83A.190; Ord. No. 70391, § 2, 11-23-2016.)

8.83A.200 Renewal of permit.

A. All Short-Term Loan Establishment permits shall expire on December 31 of each calendar year. Renewal applications for such permits shall be submitted between October 1 and November 30 of each calendar year, accompanied by payment in full of the fee stated in the Short-Term Lending Code, by cash, certified or cashiers check, or money order, and no application shall be considered complete until the fee is paid. The fee shall not be refunded under any circumstances. A Short-Term Loan Establishment permit issued under the Short-Term Lending Code may be renewed if an application in the form provided by the Commissioner has been filed with the application fee with the Commissioner and if the applicant is in compliance with the requirements in the Short-Term Lending Code for an original permit, including, but not limited to, Section 16 of the Short-Term Lending Code.

B. Upon timely application therefore, and subject to meeting the requirements in the Short-Term Lending Code for a new permit, a Short-Term Loan Establishment permit may be renewed by issuance of a new permit in the manner provided in the Short-Term Lending Code unless the Commissioner disapproves the renewal application in the manner provided by Section 17 of the Short-Term Lending Code.

C. Upon the filing of a timely application for renewal of a permit issued under the provisions of the Short-Term Lending Code, the Commissioner shall issue a temporary permit to the applicant, which temporary permit shall remain in effect until the Commissioner has approved or disapproved the application. If a hearing is held as required by Section 17 of the Short-Term Lending Code, the temporary permit shall remain in effect until the Commissioner has issued an order following the hearing. However, if any hearing required by Section 17 of the Short-Term Lending Code is delayed at the request of the applicant, the temporary permit issued under the provisions of this subsection shall expire as of the date the hearing was scheduled by the Commissioner, unless the applicant shows good cause for the delay.

D. Any applicant issued a temporary permit under the provisions of this section shall comply, or continue to comply, with the provisions of the Short-Term Lending Code. Additionally, an applicant issued a temporary permit under the provisions of this section shall be subject to the penalty provisions provided in the Short-Term Lending Code.

E. If the application for renewal of a permit is not made during the time provided in Subsection A of this section, the permit shall expire and the permittee shall cease those activities authorized under the Short-Term

Lending Code and the permittee shall file a new application and meet all requirements of the Short-Term Lending Code before engaging in the business or occupations regulated under the Short-Term Lending Code. In addition, an application for renewal filed after the expiration date shall be treated as a new application. (1994 C., § 8.83A.200; Ord. No. 70391, § 2, 11-23-2016.)

Chapter 8.84

SOLICITATIONS

Prior history: Ord. 52194; 1948 C. Ch. 61 §§ 2—8; 1960 C. §§ 745.040—745.160, 799.010, 799.020

For charity solicitations commissions, see Ch. 3.60.

Sections:

8.84.010 Definitions.
8.84.020 Permit—Required.
8.84.030 Prohibition.
8.84.040 Permit—Application—Filing time.
8.84.050 Permit—Application—Contents.
8.84.060 Permit—Fee.
8.84.070 Rules and regulations.
8.84.080 Solicitation by minors.
8.84.090 Copy of permit.
8.84.100 Canisters.
8.84.110 Permit—Revocation.
8.84.120 Using permit as endorsement.
8.84.130 Penalty for violation.

8.84.010 Definitions.

The following definitions shall apply to the provisions of this chapter:

A. "Director" shall mean the Director of the Street Department.

B. "Solicit" and "solicitation" shall mean any request, plea, entreaty, demand, or invitation, or attempt thereof, to give money or property or purchase merchandise or goods, that occurs on the streets, sidewalks or public rights-of-way in connection with which:

1. Any appeal is made for charitable purposes; or

2. The name of any charity, philanthropic or charitable organization is used or referred to in any such appeal as an inducement for making any such gift or purchase; or

3. Any statement is made to the effect that such gift or any part thereof will go to or be used for any charitable purpose or organization.

C. "Charitable organization" shall mean and include any person who, or any nonprofit community organization, fraternal, benevolent, educational, philanthropic, or service organization, or governmental employee organization which, solicits or obtains contributions solicited from the public for charitable purposes of or holds any assets solely for charitable purposes.

D. "Charitable purpose" shall mean any purpose which promotes, or purports to promote, directly or indirectly, the well-being of the public at large or any number of persons, whether such well-being is in general or limited to certain activities, endeavors or projects. (1994 C., § 8.84.010; Ord. No. 67389, § 2, 2007.)

8.84.020 Permit—Required.

No charitable organization may solicit, directly or through an agent or employee, any contribution for any charitable purpose or conduct any sales solicitation for charitable purposes activity on the streets, sidewalks, parks or other public right-of-way unless such charitable organization shall have first obtained a permit from the Director of Streets. (1994 C., § 8.84.020; Ord. No. 67389, § 3, 2007.)

8.84.030 Prohibition.

Except as provided for in this chapter, solicitation is prohibited within the City of St. Louis. (1994 C., § 8.84.030; Ord. No. 67389, § 4, 2007.)

8.84.040 Permit—Application—Filing time.

Any charitable organization which desires to solicit within the City of St. Louis shall, at least seven (7) but not more than sixty (60) days prior to the intended solicitation, file with the Department of Streets an application to solicit on forms to be approved by the Director. (1994 C., § 8.84.040; Ord. No. 67389, § 5, 2007.)

8.84.050 Permit—Application—Contents.

The application shall be sworn to and addressed to the Director and shall contain the following:

A. Name, address and telephone number of the applicant;

B. The location(s) at which such solicitation will take place;

C. The proposed date and time period of the solicitation;

D. The name, if applicable, of the organization on whose behalf solicitation is proposed;

E. The purpose for which the solicitation is to be made and the use or disposition to be made of any receipts therefrom;

F. The name and address of the person or persons who will be in direct charge of conducting the solicitation;

G. If the solicitation is proposed by an organization, the names, addresses and telephone numbers of the organization's officers;

H. For purposes of this section a post office box shall not be an acceptable address. (1994 C., § 8.84.050; Ord. No. 67389, § 6, 2007.)

8.84.060 Permit—Fee.

The Director shall not consider any application unless a fee of thirty-five dollars ($35.00) is paid at the time the application is filed. A charge of two dollars ($2.00) shall be made for each duplicate permit. Permits shall be valid for a period of thirty (30) days. (1994 C., § 8.84.060; Ord. No. 67389, § 7, 2007.)

8.84.070 Rules and regulations.

A. No person holding a permit authorized by this chapter shall:

1. Solicit the driver or occupants of any vehicle while such vehicle is being operated upon a street or other public roadway within the City of St. Louis;

2. Solicit while standing in any street or alley or along any median in any street or roadway within the City of St. Louis;

3. Solicit within a City Park.

B. All solicitations authorized by this chapter shall occur between the hours of 9:00 a.m. and 5:00 p.m.

C. The provisions of Subsections A.1 and A.2 of this section shall not apply during the following times: 9:00 a.m. on the Saturday prior to Memorial Day until 5:00 p.m. on Memorial Day and from 9:00 a.m. on the Saturday prior to Labor Day until 5:00 p.m. on Labor Day. (1994 C., § 8.84.070; Ord. No. 67389, § 8, 2007.)

8.84.080 Solicitation by minors.

No person sixteen (16) years of age or younger shall be allowed to solicit within the City of St. Louis unless such person is accompanied by a person who is at least eighteen (18) years old. (1994 C., § 8.84.080; Ord. No. 67389, § 9, 2007.)

8.84.090 Copy of permit.

No person shall solicit for funds unless such person possesses a copy of the original permit issued by the Director. The permit shall designate the permittee, the signature of the persons in charge of the solicitation, and other information as the Director may direct. (1994 C., § 8.84.090; Ord. No. 67389, § 10, 2007.)

8.84.100 Canisters.

Canisters may only be used in a solicitation when the canister has attached to it a copy of the permit issued by the Director. All of the canisters shall be returned to the principal office of the person or organization conducting a solicitation on or before the expiration date shown on the permit attached to the canister. (1994 C., § 8.84.100; Ord. No. 67389, § 11, 2007.)

8.84.110 Permit—Revocation.

The Director shall have the power to revoke any permit issued under the provisions of this chapter. (1994 C., § 8.84.110; Ord. No. 67389, § 12, 2007.)

8.84.120 Using permit as endorsement.

No person holding a permit, or any agent, member or representative thereof, shall advertise or represent in any manner, that the permit is an endorsement of the holder by the City of St. Louis. (1994 C., § 8.84.120; Ord. No. 67389, § 13, 2007.)

8.84.130 Penalty for violation.

Any person found guilty of a violation of this chapter shall be assessed a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00). Upon a finding that a violation of this chapter has occurred, the person and the organization found to be in violation shall be prohibited from applying for a permit for a period of twelve (12) months from the date of the finding of guilt. (1994 C., § 8.84.130; Ord. No. 67389, § 14, 2007.)

Chapter 8.86

SOLID FUEL

City Counselor Ops.: 8223

McQuillin:

26.108 Coal, lumber and fuel dealers and yards

Sections:

8.86.010 Definitions.

8.86.020 Emergency supplies.

8.86.030 Name, address and permit number to be displayed on vehicles.

8.86.040 Permit—Required.

8.86.050 Permit—Application—Contents.
8.86.060 Permit—Application—Investigation.
8.86.070 Permit—Approval or disapproval—Appeal.
8.86.080 Permit—Approval or disapproval—Protests.
8.86.100 Permit—Fees—Fuel peddlers.
8.86.110 Permit—Refusal—Revocation.
8.86.120 Permit—Revocation.
8.86.130 Vehicles.
8.86.140 Register.
8.86.150 Surety requirements.
8.86.160 Bond—Required.
8.86.170 Bond—Conditions.
8.86.180 Bond—Beneficiaries.
8.86.190 Bond—Endorsement.
8.86.200 Registration sticker.
8.86.210 Change of supply source.
8.86.220 Inspections.
8.86.230 Furnishing different coal from that contracted.

8.86.010 Definitions.

Whenever the following terms are used in this chapter, they shall have the meanings respectively ascribed to them in this section, unless otherwise provided:

A. "Commissioner" means the Commissioner of Smoke Regulation.

B. "Fuel hauler" means any person engaged in the practice of hauling solid fuel.

C. "Fuel peddler" means any person who lawfully stores, distributes, advertises, sells, offers for sale or delivery, solid fuel in quantities of less than one thousand pounds in bags, baskets or bushel measures.

D. "Haul" means the hauling, transporting, distributing or delivering of solid fuel for use or consumption in the City by any person, regardless of the person's interest in the solid fuel other than its haulage, transportation, distribution or delivery.

E. "Solid fuel" means any anthracite, semi-anthracite, bituminous or lignite coal, briquette, boulets, coke, gas-house coke, petroleum coke, carbonized coal, petroleum carbon or any other mined, manufactured, processed or patented fuel not sold by liquid or metered measure.

F. "Solid fuel permit" means certificate of authority under which any person may lawfully produce or haul solid fuel for use or consumption in the City.

G. "Storage" or any other word derived from the word "store" means solid fuel stored for immediate or future hauling.

H. "Vehicle" means any wagon, cart, truck, machine, tractor, trailer, semi-trailer, automobile or vehicle of any kind used for the importing or hauling of solid fuel on the streets of the City. (1948 C., Ch. 62, § 1; 1960 C., § 647.010; 1994 C., § 8.86.010; Ord. No. 45229, § 1(part), 1950.)

8.86.020 Emergency supplies.

Nothing in this chapter shall be construed to govern or prohibit any person from hauling an emergency supply of solid fuel in an amount not to exceed two hundred and fifty pounds of solid fuel for his own individual use; provided, that the limited supply of solid fuel has been procured from a permittee under this chapter; and provided further, that the emergency supply of solid fuel is in compliance with all City ordinances regulating smoke control and the production, handling, importing, storing, selling, transporting, hauling, advertising, delivering, distributing, use of or the consumption of solid fuel. (1948 C., Ch. 62, § 2; 1960 C., § 647.020; 1994 C., § 8.86.020.)

8.86.030 Name, address and permit number to be displayed on vehicles.

Every person who shall haul any solid fuel must display, and keep displayed at all times, in a prominent place on both outer sides of each vehicle used for hauling, his name, solid fuel permit number and address by street and number in letters not less than three inches in height so that it may be readily distinguishable at all times. (1948 C., Ch. 62, § 3; 1960 C., § 647.030; 1994 C., § 8.86.030.)

8.86.040 Permit—Required.

No person shall produce, import or haul solid fuel, nor store any solid fuel for immediate or future hauling for use in the City, without first obtaining a solid fuel permit so to do, and all permits shall be for the period ending on the thirty-first day of March next after their issuance. (1948 C., Ch. 62, § 4; 1960 C., § 647.040; 1994 C., § 8.86.040; Ord. No. 45229, § 1(part), 1950.)

8.86.050 Permit—Application—Contents.

Any person making application for a solid fuel permit shall file a statement on a printed form provided by the Division of Smoke Regulation of the Department of Public Safety for that purpose, stating:

A. The names, residence and location of the place of business of the applicant;

B. If the applicant is a firm, the name of each member of the firm and the location of the chief place of business;

C. If the applicant is a corporation, the names and addresses of the president, secretary and the business manager or superintendent thereof;

D. The precise nature of the business to be carried on by the applicant;

E. The name of the person in charge of each business place of the applicant in the City where solid fuel is to be hauled, transported, stored, delivered, distributed, advertised or offered for sale, delivery or distribution, use or consumption;

F. The location of the branches and yards, owned or controlled by the applicant, and the average annual quantity of solid fuel hauled and distributed for use or consumption in the City;

G. Where solid fuel is imported or hauled from localities outside of the City, or purchased from other parties within the City, a detailed statement of the localities or places from which the solid fuels are brought and the names and post office addresses supplying the fuel, the location of the shipping stations, if any, and a statement of the average quantity received from each person annually;

H. He shall register each vehicle and report the state vehicle license number and the description of each vehicle, including the weight and capacity, to be used in hauling solid fuel;

I. If any change is made in the firm, officers, managers, superintendents, location, residence, nature of business, vehicles, or in the names or addresses of shippers or other persons supplying solid fuel or any other matter of information required by this section, written notice of the change must be given to the Commissioner of Smoke Regulation for insertion in, and correction of, the records of the Division of Smoke Regulation. (1948 C., Ch. 62, § 18; 1960 C., § 647.180; 1994 C., § 8.86.050.)

8.86.060 Permit—Application—Investigation.

The Commissioner shall examine, consider and keep a record of all applications for solid fuel permits and the bonds submitted therewith. He shall make investigations as he deems necessary and proper for his determination as to the fitness of the applicant and the sufficiency of the application. (1948 C., Ch. 62, § 15; 1960 C., § 647.150; 1994 C., § 8.86.060; Ord. No. 45229, § 1(part), 1950.)

8.86.070 Permit—Approval or disapproval—Appeal.

After a reasonable time for his investigation the Commissioner shall either approve or disapprove the application, and post a notice of his decision in his office. If he shall refuse to issue the permit he shall notify the applicant, stating the reason therefor. The applicant, within ten days after being notified of the refusal, may appeal to the Board of Public Service from the decision of the Commissioner, and the Board, after a hearing, may direct the Commissioner to issue the permit or approve his action in refusing to do so. (1948 C., Ch. 62, § 16; 1960 C., § 647.160; 1994 C., § 8.86.070; Ord. No. 45229, § 1(part).)

8.86.080 Permit—Approval or disapproval—Protests.

If after ten days from the date of posting his decision approving the application no protest has been filed with him stating the facts on which the same is based, the Commissioner shall issue a solid fuel permit to the applicant; and if a protest is filed and the Commissioner is satisfied that the grounds stated therein are sufficient to warrant him in so doing, he shall reconsider his decision, furnish the applicant with a copy of the protest, and notify the person filing the same and the applicant of the date of a hearing thereon in his office not less than five days after the receipt of the notice. After the hearing at which both the applicant and the protestant may appear by counsel and submit testimony, the Commissioner shall decide whether to issue the permit or to refuse to do so. (1948 C., Ch. 62, § 17; 1960 C., § 647.170; 1994 C., § 8.86.080; Ord. No. 45229, § 1(part), 1950.)

8.86.100 Permit—Fees—Fuel peddlers.

Every person who shall make application for a solid fuel permit as a fuel peddler shall pay the sum of five dollars as and for the annual registration fee and the registration cost of one truck. The sum of two dollars shall be charged as registration cost for each additional truck registered under a solid fuel permit, as

provided in Section 8.86.130. (1948 C., Ch. 62, § 13; 1960 C., § 647.130; 1994 C., § 8.86.100; Ord. No. 55101, § 1(part), 1968.)

8.86.110 Permit—Refusal—Revocation.

The Commissioner may refuse to issue a solid fuel permit if he shall find that the applicant therefor has, within five years next before filing his application, violated any ordinance of the City regulating the sale, transportation, use or consumption of solid fuel, or any ordinance of the City prohibiting misrepresenting the size, quality, weight, or method of preparation of solid fuel; and the Board of Public Service may approve the action of the Commissioner in refusing to issue a solid fuel permit or may revoke a solid fuel permit theretofore issued if it shall find, after a hearing, that the applicant, or the permittee as the case may be, has violated any of the ordinances aforesaid within five years last past. (1948 C., Ch. 62, § 20; 1960 C., § 647.200; 1994 C., § 8.86.110; Ord. No. 45229, § 1(part), 1950.)

Cases:

A St. Louis ordinance (Ord. 41586) authorizing the smoke commissioner to revoke a permit for carrying on the business of coal dealer held unconstitutional for failure to set up any standards of guidance or limitation. *Triangle Fuel Co. v. Caufield,* 196 S.W. 2d 296 (1946).

8.86.120 Permit—Revocation.

The Commissioner of Smoke Regulation, with approval of the Board of Public Service, may revoke any permit for any of the same reasons for which he shall refuse to issue a permit. (1948 C., Ch. 62, § 21; 1960 C., § 647.210; 1994 C., § 8.86.120.)

8.86.130 Vehicles.

No person shall haul, or cause to be hauled, any solid fuel in any vehicle which is not in compliance with the requirements of this chapter. Vehicles used for hauling solid fuel must be registered and described in the Division of Smoke Regulation by a solid fuel permittee, as a vehicle owned or exclusively controlled by such permittee. No vehicle may be registered by more than one permittee. (1948 C., Ch. 62, § 5; 1960 C., § 647.050; 1994 C., § 8.86.130.)

8.86.140 Register.

The Commissioner of Smoke Regulation shall have and keep a public register of each solid fuel permit issued by the number thereof, the name of the person to whom it is issued, the date when issued, the date of expiration, the amount paid therefor, the amount of the bond furnished by the permittee upon making application for such permit, together with the name and address of the surety, the number of vehicles and the description of each vehicle registered, and other information as he may reasonably require and information as may be required by this chapter or any ordinances with respect to the storing, handling, importing, selling, hauling, trading or exchanging, transporting, delivering, distributing, advertising or offering for sale, delivery or distribution, use or consumption of any solid fuel in the City. (1948 C., Ch. 62, § 6; 1960 C., § 647.060; 1994 C., § 8.86.140.)

8.86.150 Surety requirements.

With the exception of fuel peddlers, no permit shall be issued or remain in force, unless the applicant for the permit or the permittee has complied with the surety requirements as set forth in this chapter. (1948 C., Ch. 62, § 7; 1960 C., § 647.070; 1994 C., § 8.86.150.)

8.86.160 Bond—Required.

Before an application for a permit shall be approved, the applicant shall file a bond with the Commissioner of Smoke Regulation executed by some surety company, insurance company, association or other insurer authorized and licensed to transact business in the state. This bond is to be in the name of the City in the sum of one thousand dollars. (1948 C., Ch. 62, § 8; 1960 C., § 647.080; 1994 C., § 8.86.160.)

8.86.170 Bond—Conditions.

The bond shall be conditioned as follows:

A. To save harmless any person or purchaser involved in any transaction with the permittee so bonded pertaining to the importing, producing or hauling of solid fuel for consumption in the City;

B. A person obtaining the permit shall not violate any of the provisions of this chapter or any ordinance or law regulating the hauling, handling, storing, importing, selling, trading, exchanging, transporting, delivering, distributing, using, consuming, advertising or offering for sale, delivery, distribution, use or consumption of solid fuel in the City;

C. The permittee will pay all fees required in this chapter or in any other ordinance, together with all fines, penalties or forfeitures which may be adjudged against him under the provisions of this chapter or any other law or ordinance regulating the handling, storing, using, consuming, importing, selling, hauling, trading, exchanging, transporting, delivering, distributing or

advertising or offering for sale, delivery or distribution of solid fuel for use or consumption in the City. (1948 C., Ch. 62, § 9; 1960 C., § 647.090; 1994 C., § 8.86.170.)

8.86.180 Bond—Beneficiaries.

The bond required by this chapter shall be for the use and benefit of the City and all persons who shall purchase, use, consume or be financially interested in any solid fuel hauled, imported or produced in the City. The bond shall give assurance and guarantee to the City and all persons against loss, damage, fines or penalties by reason of any violation, on the part of the permittee under the provisions of this chapter or any other ordinances of the City regulating the handling, storing, importing, selling, hauling, trading, exchanging, transporting or delivering, distributing or advertising or offering for sale, delivery or distribution, use or consumption of solid fuel. (1948 C., Ch. 62, § 10; 1960 C., § 647.100; 1994 C., § 8.86.180.)

8.86.190 Bond—Endorsement.

The bond required by this chapter shall be in the usual form of a surety bond.

It shall contain the following endorsement: "The surety bond to which this endorsement is attached is designed and issued to comply with the provisions of an ordinance of the City of St. Louis, Missouri, entitled "An ordinance regulating the producing, importing, storing, transporting, hauling, delivering and distributing of solid fuel and solid fuel products, providing for the issuance and revocation of solid fuel permits, requiring the furnishing of a bond and the payment of a fee for the issuance of such permit; prescribing the powers and duties of the Commissioner of Smoke Regulation, the Department of Public Safety, and the Board of Public Service in the enforcement thereof; and providing penalties for the violation of this chapter; and repealing all ordinances or parts of ordinances in conflict therewith, and containing an emergency clause." It is understood and agreed that the said bond shall provide surety and guarantee for the name assured required by the said ordinance for his compliance with said ordinance and with Ordinance 41804 of the City of St. Louis, creating a Division of Smoke Regulation in the Department of Public Safety. Should anything contained in this bond conflict with the provisions of the said ordinance, then the provisions of the said ordinance shall prevail to the extent of the coverage of the limits of liability described in said ordinance. It is understood and agreed that the right of any purchaser, consumer or any other person thereunder shall not be affected by any violation of any provisions of the bond, but all the terms and conditions of the bond shall remain in full force and be binding between the company and the assured, the City of St. Louis and any person suffering loss or damage or prosecution by reason of any violation of said ordinances by, or on the part of the assured. It is also understood and agreed that no cancellation of this bond at the request of the name assured or the company shall become effective until after the expiration of ten days' written notice of such proposed cancellation has been filed with the Commissioner of Smoke Regulation of the City of St. Louis, Missouri." (1948 C., Ch. 62, § 11; 1960 C., § 647.110; 1994 C., § 8.86.190.)

8.86.200 Registration sticker.

For each truck registered under the terms of this chapter, the Division of Smoke Regulation shall provide a suitable sticker, certifying that the truck is properly registered for the current year. This sticker shall be permanently attached to the windshield of such truck in the lower left-hand corner thereof. (1948 C., Ch. 62, § 14; 1960 C., § 647.140; 1994 C., § 8.86.200.)

8.86.210 Change of supply source.

If a permittee wishes to purchase solid fuel from a source of supply not given on the list submitted at the time the application for permit is made, the Commissioner of Smoke Regulation shall be notified. (1948 C., Ch. 62, § 19; 1960 C., § 647.190; 1994 C., § 8.86.210.)

8.86.220 Inspections.

In the general performance of their duties or for the purpose of obtaining facts with respect to the compliance with this chapter, the Commissioner of Smoke Regulation and the smoke regulation inspectors are authorized to enter, at reasonable hours, the buildings, establishments, premises and enclosures in or from which they have reason to believe that the provisions of this chapter are being violated. They may inspect or examine such buildings, establishments, premises or enclosures, and shall be permitted to examine all books, papers and records pertaining to solid fuel. (1948 C., Ch. 62, § 22; 1960 C., § 647.220; 1994 C., § 8.86.220.)

8.86.230 Furnishing different coal from that contracted.

Any person having contracted to furnish a certain kind of coal, and who shall, without notice to the purchaser, furnish a kind of coal different from that

called for by the contract, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 62, § 23; 1960 C., § 647.230; 1994 C., § 8.86.230.)

Cases:

In prosecution under ordinance making it a misdemeanor to deliver a kind of coal different than that contracted for, whether size of coal specified fell within purview of ordinance was for jury. *City of St. Louis v. Braudis Coal Co.,* 137 S.W. 2d 668 (1940).

Chapter 8.88

STEAM

Sections:

8.88.010 Gross receipts—Statement.

8.88.020 Gross receipts—Tax.

8.88.030 Use of streets.

8.88.040 Penalty for violation.

8.88.050 Exemptions.

8.88.010 Gross receipts—Statement.

Every person, partnership, or corporation engaged in the business of furnishing, producing, supplying or selling steam in the City for purposes of heat or power shall file with the Comptroller on or before the second to last day of each month, commencing the _____ day of _____ 1974, a statement of the gross receipts from the business within the City for the next preceding month. This statement shall be verified by the person so filing and shall be subject to audit by the Comptroller. (1994 C., § 8.88.010; Ord. No. 56780, § 1, 1974.)

8.88.020 Gross receipts—Tax.

There is imposed on every person, partnership, or corporation engaged in the business of furnishing, producing, supplying, or selling steam in the City a gross receipts tax in an amount equal to ten percent of the gross receipts of the business. At the time of filing of the aforementioned statement, the person, partnership, or corporation shall also pay to the Comptroller the gross receipts tax due thereon. (1994 C., § 8.88.020; Ord. No. 56780, § 2, 1974.)

8.88.030 Use of streets.

No person, partnership, or corporation furnishing, producing, supplying, or selling steam in the City for purposes of heat or power for the use of the public shall be entitled to the use of the public streets, alleys, and public places for this purpose except upon the conditions described in this chapter. (1994 C., § 8.88.030; Ord. No. 56780, § 3, 1974.)

8.88.040 Penalty for violation.

Every person, natural or legal, or combinations of either or both, convicted of violating any section of this chapter shall be punished by a fine of not less than twenty-five dollars, nor more than five hundred dollars, or in the case of natural persons, by imprisonment for not more than ninety days or by both fine and imprisonment. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 8.88.040; Ord. No. 56780, § 4, 1974.)

8.88.050 Exemptions.

The enactment of this chapter and the imposition of the tax provided herein shall act to continue to exempt the gross receipts of the business of furnishing, producing, supplying or selling steam in the City from the imposition of any other tax of the City which heretofore may have been imposed prior to the approval of Ordinance No. 56780 on June 27, 1974. Additionally, the "purchase price or consumer price," as defined in Section 23.41.030, of natural gas or methane which is purchased from suppliers outside the City and transported from out of the City and is used to produce steam in the City for commercial or industrial use and for which the business gross receipts therefrom are subject to the tax imposed under Section 8.88.020 of the Code shall not be subject to the natural gas transportation license fee imposed pursuant to Chapter 23.41. However, the use of natural gas or methane purchased from suppliers outside the City and transported from out of the City to be used in the City for commercial or industrial use other than the furnishing, producing, supplying or selling of steam shall be subject to the natural gas transportation license fee imposed under Chapter 23.41. (1994 C., § 8.88.050; Ord. No. 63641, § 1, 1996; Ord. No. 56780, § 5, 1974.)

Chapter 8.90

STOCKYARDS, SALES STABLES AND CATTLE DEALERS

RSMo:

RSMo 276.010—276.080 (2016) Stockyards

RSMo 267.450 (2016) Unquarantined stock in quarantined pens prohibited

RSMo 267.120 (2016) Diseased animals—disinfectants

McQuillin:

24.291 Livestock regulation

Sections:

8.90.010 **Definitions.**

8.90.040 **Sale stable license—Certificate of character.**

8.90.060 **Penalty for violation.**

8.90.070 **Exemptions.**

8.90.010 Definitions.

For the purpose of this chapter the following terms shall have the meaning ascribed to them in this section:

A. A "horse and cattle dealer" is a person who buys or sells, barters or trades in horses, mules, cattle, hogs or sheep on his own account, without being the keeper of a stockyard or a sale stable.

B. A "sale stable" is a place where horses or mules are stabled to be bought, sold, bartered or traded as a business.

C. A "stockyard proprietor" is a person whose business or occupation is to keep a stockyard where horses, mules, cattle, hogs or sheep are bought, sold, bartered or traded, or are kept or bartered for compensation. (1948 C., Ch. 6, § 28; 1960 C., § 517.010; 1994 C., § 8.90.010.)

8.90.040 Sale stable license—Certificate of character.

Before the License Collector shall issue any license in favor of a sale stable he shall procure the certificate of the Board of Police Commissioners to the effect that the applicant is a person of good moral character. (1948 C., Ch. 6, § 32; 1960 C., § 517.050; 1994 C., § 8.90.040.)

8.90.060 Penalty for violation.

Every person who shall engage in or do business either as the proprietor or keeper of a stockyard, or of a sale stable, or as a horse and cattle dealer without first having obtained from the License Collector a license therefor as prescribed, shall be deemed guilty of a misdemeanor, and upon conviction shall pay a fine of double the amount of the license required to be paid by them respectively. (1948 C., Ch. 6, § 33; 1960 C., § 517.060; 1994 C., § 8.90.060.)

8.90.070 Exemptions.

This chapter shall not be construed so as to include the keepers of livery stables who pay an annual vehicle tax of fifty dollars or more. (1948 C., Ch. 6, § 34; 1960 C., § 517.070; 1994 C., § 8.90.070.)

Chapter 8.92

STREET RAILWAYS

RSMo:

RSMo Ch. 391 (2016) Street railroads

McQuillin:

24.667 *et seq.* Motorbuses, street railways and railroads

Sections:

8.92.010 **Application of chapter.**

8.92.020 **License—Required.**

8.92.040 **License—Fee—Failure to pay.**

8.92.050 **License—Revocation.**

8.92.060 **Passenger indicator—Report.**

8.92.070 **Report—Investigations.**

8.92.080 **Report—Failure to make, false.**

8.92.090 **Effect of Sections 8.92.030 and 8.92.050—8.92.070.**

8.92.100 **Rules and regulations for running streetcars.**

8.92.110 **Regulations when tracks intersect with railroad and other streetcar tracks.**

8.92.120 **City and company liability.**

8.92.130 **Interference with operation of Fire Department.**

8.92.140 **Quarterly reports.**

8.92.150 **Improving motive power—Authorized.**

8.92.160 **Improving motive power—Restrictions.**

8.92.170 **Fare increases—Freight.**

8.92.180 **Franchise surrender.**

8.92.190 **Tracks—Grade—Gauge.**

8.92.200 **Tracks—Failure to comply with Section 8.92.190.**

8.92.210 **Tracks—Construction and reconstruction.**

8.92.220 **Tracks—Repairs.**

8.92.230 **Streets and approaches to be kept clean.**

8.92.240 **Use of tracks of another company—Compensation.**

8.92.250 Use of tracks of another company—Commission—Appointment.

8.92.260 Use of tracks of another company—Commission—Proceedings—Report.

8.92.270 Use of tracks of another company—Bond—Compensation payments.

8.92.280 Use of tracks of another company—Appeal.

8.92.290 Use of tracks of another company—Limitations.

8.92.010 Application of chapter.

Every person having any street railway franchise or connected with or engaged in the business of transporting passengers from any one point to any other point within the City, for hire, on street railways, shall be subject to all the conditions, stipulations, provisions and requirements of this chapter. (1948 C., Ch. 63, § 8; 1960 C., § 595.101; 1994 C., § 8.92.010.)

8.92.020 License—Required.

Every person engaged in the business of transporting passengers from one point to another within the City, for hire, on street railways, shall pay a license fee to the City. (1948 C., Ch. 63, § 29; 1960 C., § 597.010; 1994 C., § 8.92.020.)

McQuillin:

26.169 Licensing of street railways

8.92.040 License—Fee—Failure to pay.

On the sixteenth day of April, July, October and January of each year the License Collector shall notify all persons required to pay a streetcar license fee, to pay the license fee; and any of them refusing, failing or neglecting to pay such fee within ten days after having received the notice, shall be deemed guilty of a misdemeanor, and each day of the failure, neglect or refusal shall constitute a separate offense. (1948 C., Ch. 63, § 34; 1960 C., § 597.060; 1994 C., § 8.92.040.)

8.92.050 License—Revocation.

A failure, refusal or neglect to pay the license fee as required by Section 8.92.040 for thirty days after the same is payable shall operate as a revocation of any existing or subsequent license the parties may have obtained to operate streetcars in this City. (1948 C., Ch. 63, § 35; 1960 C., § 597.070; 1994 C., § 8.92.050.)

8.92.060 Passenger indicator—Report.

Every person who is required to pay a streetcar license fee, shall provide for, and equip each car used by it for transportation or carrying passengers, with a suitable register or indicator, capable of registering passengers to a number not less than nine thousand nine hundred and ninety-nine, and upon which shall be registered, rung up or indicated in continuous numerical succession the number of passengers who have paid for transportation on such car, and the conductor or person collecting the fare shall ring up or register each passenger as the fare is collected.

Every such person shall each day furnish the Register of the City with a report or table showing the number of pay or revenue passengers transported on each respective car operated by it on the preceding day, each car to be identified by its number, and also the number or figures shown on the passenger register or indicator at the time each car started on its first trip for the day covered by the report, to be designated as beginning number; the report or table shall also show the number of figures shown on the passenger register or indicator when the car was discontinued from carrying passengers on such day, which shall be designated as closing number.

The report or table for a day preceding a legal holiday or a Sunday shall be furnished on the first secular day thereafter.

If the furnishing of the table or report on the day provided for in this section becomes impossible by reason or circumstances beyond the control of the person or company required to furnish the same then it shall be furnished as soon thereafter as possible. (1948 C., Ch. 63, § 31; 1960 C., § 597.030; 1994 C., § 8.92.060.)

8.92.070 Report—Investigations.

The Comptroller of the City, or he, acting through his authorized deputies shall be, and hereby is, authorized to investigate the correctness and accuracy of the returns or reports required in Section 8.92.060, and for that purpose shall have access at all reasonable times to the registers, books, documents and reports bearing on the same, of any person required to make the report or table. (1948 C., Ch. 63, § 32; 1960 C., § 597.040; 1994 C., § 8.92.070.)

8.92.080 Report—Failure to make, false.

Every person refusing or neglecting to make the report provided for in Section 8.92.060, or making any false or fraudulent report, or interfering in the performance of the duties of the Comptroller provided for in

Section 8.92.070, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 63, § 33; 1960 C., § 597.050; 1994 C., § 8.92.080.)

8.92.090 Effect of Sections 8.92.030 and 8.92.050—8.92.070.

Nothing in Sections 8.92.030 and 8.92.050—8.92.070 shall be construed as exempting or excusing any person embraced therein from the payment of any sum agreed, assumed or required to be paid by the terms of any special ordinance, agreement or contract, nor as replacing or affecting the same in any way, nor shall such sections be construed as impairing or affecting any license heretofore obtained. (1948 C., Ch. 63, § 36; 1960 C., § 597.080; 1994 C., § 8.92.090.)

8.92.100 Rules and regulations for running streetcars.

The following rules, regulations and provisions concerning the running and management of street railway cars shall be binding upon every person taking out a license under the provisions of this chapter, or managing, controlling or operating streetcars in the City:

A. *Not to Be Kept Standing.* No cars, when not in actual use for passenger travel, shall be kept standing in any street or public thoroughfare, except for the convenience of the public and when manned by motormen and conductors.

B. *Stopping in Front of Intersections.* No car shall be allowed to stop in front of any intersecting street, except to avoid collision or to prevent danger to persons in the street.

C. *Stopping on Crosswalks.* No car shall be allowed to stop on a crosswalk except when signaled or required to stop to receive or discharge passengers, in which case it shall be stopped, leaving the rear platform partly over the crossing or crosswalk, and except to avoid collision or to prevent danger to persons in the streets.

D. *Vigilant Watch to be Kept.* The conductor, motorman, gripman, driver or any other person in charge of each car shall keep vigilant watch for all vehicles and persons on foot, especially children, either on the track or moving towards it, and on the first appearance of danger to such persons or vehicles, the car shall be stopped in the shortest time and space possible.

E. *Entering or Leaving While in Motion.* Conductors shall not allow women or children to leave or enter the cars while the cars are in motion.

F. *Announcement by Conductors.* Conductors shall announce to passengers the names of the streets about to be crossed, and the places where the cars connect with passengers from any one point to any other point within the City. (1948 C., Ch. 63, § 9; 1960 C., § 595.020; 1994 C., § 8.92.100.)

RSMo:

RSMo 82.460 (2016) Streetcar gates, passengers, regulation

Cases:

Vigilant watch ordinance required streetcar operator not only to keep vigilant watch for vehicles on streetcar track but for vehicles moving toward track and, on first appearance of danger to any such vehicle, to stop as quickly as possible. *Pijut v. St. Louis Public Service Co.,* 350 S.W. 2d 778 (1961).

Streetcar motorman is required to stop upon first appearance of danger under the vigilant watch ordinance. *Abernathy v. St. Louis Public Service Co.,* 240 S.W. 2d 914 (1951).

The vigilant watch ordinance of the city is valid as a reasonable requirement within the power to control streets and the power to regulate their use and promote public safety. *State v. Reynolds,* 295 Mo. 375, 244 S.W. 929 (1922).

McQuillin:

24.691 Regulation of street railways

8.92.110 Regulations when tracks intersect with railroad and other streetcar tracks.

At all points where the streetcar track may intersect or cross any steam railroad track, every streetcar shall be brought to a full stop not less than ten nor more than twenty-five feet from nearest point of intersection, and shall not proceed to cross the railroad track until, upon sufficient investigation, the conductor, or other proper agent appointed by the company for that purpose, is assured there is no danger of collision, whereupon the person in control of the car shall be signaled to proceed. At all points where the street railway track intersects or crosses other street railway tracks, the car shall be stopped immediately before crossing the same, so as to avoid danger of collision. The car going in an eastwardly or westwardly direction over, on or crossing any intersecting street upon which other streetcars are run shall be entitled to the right-of-way to pass before any car going in a northwardly or southwardly direction at the point of intersection of the streets. It shall be the duty of the conductor, motorman, gripman, driver or any other person in charge of the car going in a northwardly or southwardly direction to run the car when approaching the intersection of other street rail-

ways so as to stop in due time and give the right-of-way to the car going in an eastwardly or westwardly direction on the intersecting line. In no event shall this clause be so construed as to sanction or allow a willful or wanton collision by the conductor, motorman, gripman or driver of a car running in an eastwardly or westwardly direction. (1948 C., Ch. 63, § 10; 1960 C., § 595.030; 1994 C., § 8.92.110.)

RSMo:

RSMo 391.240 (2016) Duty of streetcars where tracks cross railroad tracks

8.92.120 City and company liability.

The City shall not be held liable to any railway company or individuals for any damage resulting from the breaking of any sewer, or any water or gas pipes, or from any delay in the transportation of persons that may be caused thereby, or from delays or damages caused by fire or otherwise; but any such railway company or individuals shall be liable for any loss or injury that any person may sustain by reason of any carelessness, neglect or misconduct of their servants or agents in the management, construction or use of their track or cars. (1948 C., Ch. 63, § 15; 1960 C., § 595.040; 1994 C., § 8.92.120.)

8.92.130 Interference with operation of Fire Department.

No privilege or authority granted shall be so construed as in any manner to interfere with the operation of the Fire Department of the City, but in all instances in cases of fire, the use of the streets where railroad tracks are laid shall be subservient to the necessities of the Fire Department. (1948 C., Ch. 63, § 16; 1960 C., § 595.050; 1994 C., § 8.92.130.)

8.92.140 Quarterly reports.

It shall be the duty of each and all of the street railroad companies in the City to report, under oath, to the City Register, between the first and fifteenth days of the months of April, July, October and January of each year, by their president, secretary or superintendent, the number of trips made, the distance in miles traversed thereby, the number of passengers carried over the road, of which the person making the report is an officer, the number of cars operated, and the number of revenue or pay passengers carried on each car respectively, during the preceding three months ending on the last day of the months of March, June, September and December. Any street railway company failing to make the report required by this section shall be guilty of a misdemeanor, and every day that the report remains delinquent shall be considered a separate offense. (1948 C., Ch. 63, § 17; 1960 C., § 595.060; 1994 C., § 8.92.140.)

8.92.150 Improving motive power—Authorized.

The street railroad companies in the City are authorized and empowered to use any improved motive power or motor for the traction or propelling of cars over their respective lines, such permission to be subject to restrictions and conditions as may be imposed by ordinance of the City, and subject to revocation by ordinance. (1948 C., Ch. 63, § 19; 1960 C., § 595.070; 1994 C., § 8.92.150.)

8.92.160 Improving motive power—Restrictions.

Section 8.92.150 shall have force and effect only upon and as to such street railroads and street railroad companies as may file with the City Register a written acceptance of Sections 8.92.150—8.92.170, as an amendment to their respective charters. (1948 C., Ch. 63, § 20; 1960 C., § 595.080; 1994 C., § 8.92.160.)

8.92.170 Fare increases—Freight.

Nothing contained in this chapter shall be construed to authorize an increase of the rate of fare as now established, nor to allow the transportation of freight over street railroads, nor to allow the use of the ordinary dummy or box car, engine or locomotive of the kind now used upon steam railroads in this state. (1948 C., Ch. 63, § 21; 1960 C., § 595.090; 1994 C., § 8.92.170.)

McQuillin:

24.713 Taxes and transfer

8.92.180 Franchise surrender.

Any street railway company unable or indisposed to carry forward its business may notify the Mayor of such indisposition, and surrender thereby all of its chartered rights or franchises; but the company desiring so to do, shall first give not less than sixty days' notice in writing to the Mayor of such intention, and intended action, and after giving notice, the surrender contemplated or referred to therein shall not be revoked or withdrawn except by permission of the Mayor given before the expiration of the time limited in the notice for the surrender to take place and no such company shall be authorized to surrender a part only of its chartered rights or franchises and retain the remainder, unless sanctioned by ordinance duly enacted as

required by law. (1948 C., Ch. 63, § 28; 1960 C., § 595.100; 1994 C., § 8.92.180.)

8.92.190 Tracks—Grade—Gauge.

All street railroad tracks shall be constructed and reconstructed at the established grade of the streets. The gauge between the rails shall be established by the Board of Public Service. (1948 C., Ch. 63, § 11; 1960 C., § 596.010; 1994 C., § 8.92.190.)

McQuillin:

24.714 et seq. Tracks and roadbed

8.92.200 Tracks—Failure to comply with Section 8.92.190.

Any failure, refusal or neglect of any street railroad company or corporation, or any officer thereof to comply with the provisions of Section 8.92.190, shall be deemed a misdemeanor, and, upon conviction of the company, corporation or officer thereof, he or it shall be fined not less than fifty dollars nor more than five hundred dollars for each and every rail so laid by the company not in compliance with the provisions of this and Section 8.92.210. (1948 C., Ch. 63, § 12; 1960 C., § 596.020; 1994 C., § 8.92.200.)

8.92.210 Tracks—Construction and reconstruction.

Whenever, by authority of an ordinance of the City, the carriageway of any street upon which one or more railway tracks are laid, is to be constructed or reconstructed, the Director of Streets shall notify the railroad company whose track is laid on the street, to construct or reconstruct in like manner, and with the same kind of material as specified in the ordinance, the space between the rails and the space between the tracks where there is a double track or more, and twelve inches outside of each rail; provided, however, that a better material may be used between the rail, if approved by the Director of Streets, and the work shall be executed and completed as rapidly as the street improvement is executed and completed.

A failure to observe this section shall, as to each block or part of block of the street improved, constitute a separate offense, and the person offending, shall, on conviction, be deemed guilty of a misdemeanor. (1948 C., Ch. 63, § 13; 1960 C. 596.030; 1994 C., § 8.92.210.)

8.92.220 Tracks—Repairs.

All street railroad companies shall keep in repair the space between the rails and the space between the tracks where there is a double track or more and twelve inches outside of each outside rail. The repairs shall be made and maintained with the material the street is paved with; provided, however, that a better material may be used with the approval or by the direction of the Street Commissioner. Every failure to observe this section shall constitute an offense, and the corporation offending shall be deemed guilty of a misdemeanor. Each day a given location remains unrepaired after the expiration of twenty-four hours from the time a written or printed notice to repair the same is issued by the Street Commissioner and is delivered at the office of the company in the City, shall constitute a separate offense. (1948 C., Ch. 63, § 14; 1960 C., § 596.040; 1994 C., § 8.92.220.)

Charter:

Art. XIX § 4 Maintenance of streets by street railroads Cases: In action against street railway company for death of child, reading of ordinance concerning defendant's duty to keep street in repair held proper. *Callahan v. United Rys. Co.,* 263 S.W. 443 (1924). Under the city charter, street car companies are required to keep the streets within a certain distance of their rails in repair, and to keep the street as near even with the top of the rails as possible, and a company is liable for its failure both to the city and a private person. *Asmus v. United Rys. Co. of St. Louis,* 152 Mo. App. 521, 134 S.W. 92 (1911).

McQuillin:

24.36 Keeping streets in good condition as franchise condition

8.92.230 Streets and approaches to be kept clean.

All street railroad companies in St. Louis shall keep free from mud, snow and dust the approaches to their cars in use at the termini of their lines, whether main lines or extensions, and at the car barns and power houses of the companies, and all other places where the cars stop, otherwise than momentarily to receive or discharge passengers, and shall maintain clean and proper footways between the cars of the main line and the extension where passengers are transferred; and shall keep the streets occupied by them between the rails and between the track where there is a double track or more, and for a space of twelve inches outside of each rail, in clean condition by the removal of all snow, dust, dirt, mud and offal therefrom. The snow, dust, dirt, mud and offal shall be hauled away by the railroad companies and shall not be deposited on the streets. Every day upon which any company fails to comply with this section shall constitute a separate offense and the corporation offending, shall, on convic-

tion, be deemed guilty of a misdemeanor. (1948 C., Ch. 63, § 18; 1960 C., § 596.050; 1994 C., § 8.92.230.)

McQuillin:

24.36 Keeping streets in good condition as franchise condition

8.92.240 Use of tracks of another company—Compensation.

Any street railroad company which is or may be hereafter authorized by ordinance of the City to operate a line of street railroad cars along, across or upon any street of the City, along, across or upon which street any other street railroad company then owns a street railroad, the first-mentioned company may operate and run its cars over the track of the other company across, along and upon such streets as it may by ordinance aforesaid be authorized to run and operate its road, upon the payment of just compensation, to be ascertained under the rules and regulations prescribed in Sections 8.92.250—8.92.290. (1948 C., Ch. 63, § 22; 1960 C., § 598.010; 1994 C., § 8.92.240.)

Charter:

Art. XIX § 5 Use of tracks of one street railroad by another

8.92.250 Use of tracks of another company—Commission—Appointment.

When any street railroad company shall desire to operate a line of streetcars over the track of any other street railroad company, or part thereof, as provided in Section 8.92.240, and an agreement cannot be had between the companies as to the compensation to be paid therefor by the company so desiring, the compensation shall be ascertained by a commission of three disinterested freeholders of the City, to be chosen and appointed in the following manner.

The company desiring to use the track may make written application to that effect to the Mayor, accompanied by plans and specifications showing the extent of track it desires to use, first giving ten days' notice in writing to the railroad company whose track it is designed to use, of the time and purport of the application. On receipt of the same, with evidence of notice, the Mayor shall give notice to each of the companies to report to him in writing within ten days thereafter, the name and address of one disinterested freeholder of the City, to act as its chosen commissioner. Upon the expiration of the ten days aforesaid, the Mayor shall forthwith appoint a third disinterested freeholder of the City to act as commissioner, and shall also appoint one freeholder to represent either of the companies which shall have refused or neglected to appoint a commissioner within the time aforesaid. Thereupon the Mayor shall give notice to the commissioners so appointed of their appointment, and shall turn over to them all papers in his possession, relating to the matter in controversy, and in case of vacancy in the Board of Commissioners, caused by death or refusal to serve of any of the commissioners, or for any other cause whatever, the Mayor shall appoint a commissioner to fill the vacancy. All the commissioners provided for under the provisions of this section shall be freeholders, residents of the City, and shall not be interested in any manner as stockholders, bondholders, lienholders or officers or employees of either of the street railway companies in question. When appointed, the commissioners shall proceed to determine the compensation to be paid and the time and manner of its payment; provided, that in case one or more street railroad companies shall thereafter be authorized to operate, and do cause to be operated a line of street railroad cars upon the track, the compensation paid by the company or companies already occupying the track may, upon application of either of the companies to the Mayor, be revised and readjusted by a commission of three disinterested freeholders, chosen and appointed in the manner prescribed in this section. And either party may apply for a readjustment of the terms of compensation once in each period of two years, to be determined as prescribed in this section. (1948 C., Ch. 63, § 23; 1960 C., § 598.020; 1994 C., § 8.92.250.)

8.92.260 Use of tracks of another company—Commission—Proceedings—Report.

The commissioners appointed under the provisions of Section 8.92.250, before proceeding to hear any testimony, shall take and subscribe an oath before some officer duly authorized to administer an oath, that they possess all the qualifications required in Section 8.92.250, and that they will faithfully and fairly hear and examine the matter in controversy, and make a just award to the best of their understanding, which oath shall be filed and returned with the award. They shall meet together and view the track or parts of track proposed to be used by the company making the application, and shall hear testimony of witnesses, and the proofs and allegations of the parties to the proceedings, as to the value of the tracks and as to the compensation to be paid to the company whose track is to be used,

and such damages as the commissioners may deem just, and upon the close of the testimony shall, without unnecessary delay, make a report in writing of their decision and award, which report shall be signed by them or a majority of them, and addressed and delivered to the Mayor forthwith upon its completion. The commissioners shall be entitled to ten dollars each per day for their expenses and services for the first ten days they are actually engaged in performing their duties, and one dollar for each succeeding day actually employed thereafter, to be paid by the company making the application. (1948 C., Ch. 63, § 24; 1960 C., § 598.030; 1994 C., § 8.92.260.)

8.92.270 Use of tracks of another company—Bond—Compensation payments.

On the reception of the report of the commissioners, under the provisions of Section 8.92.260, the Mayor shall file the same, together with the original application and all papers pertaining to the proceedings with the City Register and shall immediately notify the parties of the decision of the commissioners and of the filing of their report. Thereupon, and on payment by the company making the application of the amount of the compensation awarded in the report, or after paying the same into the Circuit Court for the company whose track it is proposed to use and upon payment of the costs and expenses of the commissioners and upon filing with the City Register a bond in the sum of twenty thousand dollars, which bond shall be conditioned for the payments to the company whose tracks are to be used of such additional compensation as may be ordered to be paid by the Circuit Court on any proceeding therein as provided in Section 8.92.280, the first named company shall be entitled without further delay to enter upon and run its cars over the track or part of the track mentioned and described in the report of the commissioners. (1948 C., Ch. 63, § 25; 1960 C., § 598.040; 1994 C., § 8.92.270.)

8.92.280 Use of tracks of another company—Appeal.

Upon the filing of the report of the commissioners, the Register shall duly notify both parties to the controversy of the filing thereof, and either party to the controversy may, at any time within ten days after the service of the notice as aforesaid, appeal to the Circuit Court of the City for a review of the report of the commissioners, by filing with the clerk of the court written exceptions to the report, and serving a copy of the exception upon the opposite party, together with notice of the time of filing the same, and the court may thereupon make the order therein as right and justice may require, and may order a new appraisement in the manner hereinbefore prescribed, upon good cause shown; but notwithstanding the appeal, the company may operate its cars over the track or parts of the track as the report of the commissioners may designate, and any subsequent proceedings shall affect only the amount of compensation to be paid and the manner and time of payment. (1948 C., Ch. 63, § 26; 1960 C., § 598.050; 1994 C., § 8.92.280.)

8.92.290 Use of tracks of another company—Limitations.

The company using the track, or part of the track of another company, under the provisions of this and Sections 8.92.240—8.92.280, shall run its cars while on the track at the same rate of speed as the cars of the company owning the track, and shall construct and keep its connections with the track of the company so as not to delay or interfere with the cars of the company owning the track. Any company using the track of another company, in whole or in part, shall charge no more than one passage over its whole line. (1948 C., Ch. 63, § 27; 1960 C., § 598.060; 1994 C., § 8.92.290.)

Chapter 8.96

SURVEYORS

City Counselor Ops.: 9447

Sections:

8.96.010 License—Required.
8.96.020 License—Application.
8.96.030 License—Fee—Bond.
8.96.040 License—Display.
8.96.050 License—Number on plats.

8.96.010 License—Required.

No person shall engage in the business of surveying lands for the purpose of determining boundaries without first having obtained a license from the License Collector. (1948 C., Ch. 13, § 86; 1960 C., § 618.010; 1994 C., § 8.96.010.)

8.96.020 License—Application.

The application for a license to engage in the business of surveying lands for the purpose of determining boundaries shall be made in writing to the License Collector, and shall state the name of the applicant, the

place of business of the applicant, and the maximum number of draughtsmen employed by the applicant during the twelve months preceding the first day of May of any year. (1948 C., Ch. 13, § 87; 1960 C., § 618.020; 1994 C., § 8.96.020.)

8.96.030 License—Fee—Bond.

The License Collector is authorized and directed to issue one City surveyor's license to a person upon receipt of the sum of twenty-five dollars; provided, that the applicant has furnished sufficient evidence that he is a legally appointed City Surveyor, and that the bond as required by Section 11 Article XXV of the City Charter, is in force and approved by the City Counselor and the Comptroller and filed in the City Register's Office.

The license fee of twenty-five dollars shall cover the period of one year only and the license fee shall be renewed on the first day of May of each year. (1948 C., Ch. 13, § 88; 1960 C., § 618.030; 1994 C., § 8.96.030.)

8.96.040 License—Display.

The certificate of the license provided for in this chapter shall be conspicuously displayed in the place of business of the licensee. (1948 C., Ch. 13, § 89(part); 1960 C., § 618.040(part); 1994 C., § 8.96.040.)

8.96.050 License—Number on plats.

All plats, drawings and maps, as prepared by the City Surveyor which show the results of any survey where land boundaries are involved, shall have the number of the license certificate plainly affixed below the Surveyor's seal. (1948 C., Ch. 13, § 89(part); 1960 C. 618.040(part); 1994 C., § 8.96.050.)

Chapter 8.97

TATTOO PARLORS

Sections:

8.97.010 Definitions.
8.97.030 Contents of application.
8.97.060 Hearing on application.
8.97.070 Approval of application.
8.97.080 Regulations.
8.97.090 Hours.
8.97.100 Sanitation and lighting.
8.97.110 Noise and conduct.
8.97.120 Number of chairs.
8.97.130 Renewal of licenses.
8.97.140 Revocation of licenses by neighborhood petition.
8.97.150 Revocation of licenses for violation.
8.97.160 Board of public service to adopt forms and promulgate rules.
8.97.180 License collector prohibited from issuing license.

8.97.010 Definitions.

As used in this chapter:

A. "Tattoo parlors" means a business premises in which the act or practice of marking the human skin with patterns, pictures, legends, or words by making punctures in it and inserting pigments is conducted.

B. "Keeper" means any person, firm or corporation which operates a tattoo parlor.

C. "Premises" means a structure or building in which a tattoo parlor is situated. (1960 C., § 729.010; 1994 C., § 8.97.010; Ord. No. 70813, § 8(8.97.010), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.030 Contents of application.

Every person applying for a tattoo parlor license shall file a written application with the Board of Public Service setting forth his qualifications as follows:

A. Name, address, birthdate and place of birth;

B. His employment background for twelve years prior to the date of application and whether any previous business or occupational license, including any alcoholic beverage license and tattoo parlor license has been revoked and for what reasons;

C. Such other facts relevant to the general personal history of the applicant as he or the Board of Public Service shall find necessary to a fair determination of the applicant's eligibility for a license;

D. The applicant shall also file a drawing of the proposed premises showing the dimensions thereof together with the proposed number and location of the tattoo chairs, and also indicating the location of all doorways, windows, lights, entrances, and exits to the premises and the rest room facilities, if any, and such plat shall remain as part of the record concerning the application and premises.

The applicant shall pay an application fee for all administrative costs. (1960 C., § 729.030; 1994 C., § 8.97.030; Ord. No. 70813, § 8(8.97.030), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.060 Hearing on application.

After filing of the application, drawing and such other additional information as may be required by the Board of Public Service, it shall set a date for the hearing on the application within a reasonable time after the filing of the application or the last information, and shall give the applicant written notice of the date of the hearing. At such hearing, the applicant shall be entitled to produce testimony under oath, and the Board of Public Service shall have the authority to subpoena witnesses and to take their testimony under oath pertaining to all matters connected with the application and any interested person in the matter shall have the right to give testimony. (1960 C., § 729.060; 1994 C., § 8.97.060; Ord. No. 70813, § 8(8.97.060), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.070 Approval of application.

A majority of the Board of Public Service in its sound discretion may approve such application after a hearing, if it is satisfied that the applicant is of good moral character and that the applicant has given evidence that he will be able to operate the premises in compliance with all regulations and laws governing such premises, and the applicant is a resident of the state. A majority of the Board of Public Service may propose and require changes in the premises in regard to the doorways, windows, lights, entrances, exits and toilet facilities and in regard to the number and location of tattoo chairs, before granting its approval of the application. (1960 C., § 729.070; 1994 C., § 8.97.070; Ord. No. 70813, § 8(8.97.070), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.080 Regulations.

The regulations set forth in Sections 8.97.090 through 8.97.120 shall apply to all licensed tattoo parlors, and a licensee or operator of a tattoo parlor is at all times responsible for the orderly conduct of his tattoo parlor and the acts of any of his agents, servants or employees in the operation of his tattoo parlor. (1960 C., § 729.080(part); 1994 C., § 8.97.080; Ord. No. 70813, § 8(8.97.080), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.090 Hours.

All tattoo parlors shall be open only between the hours of 9:00 a.m. and 1:00 a.m. Central Standard Time or Daylight Saving Time, whichever shall be in effect. All tattoo parlors shall have all patrons removed and the doors locked by the closing times mentioned herein and shall suffer no person subject to curfew regulations to be or remain on the premises in violation of the curfew hours. Any licensee who repeatedly violates this regulation concerning curfew hours shall be deemed to have, prima facie, violated these regulations without showing of other violations. (1960 C., § 729.080(1); 1994 C., § 8.97.090; Ord. No. 70813, § 8(8.97.090), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.100 Sanitation and lighting.

All tattoo parlors shall be kept clean and well-lighted so that the rear of the premises is plainly visible from the front of such premises. (1960 C., § 729.080(2); 1994 C., § 8.97.100; Ord. No. 70813, § 8(8.97.100), 7-16-2018; Ord. No. 47404, § 1(part), 1977.)

8.97.110 Noise and conduct.

No tattoo parlor shall suffer or permit any loud noises, boisterous or disorderly conduct in or around the premises or on any grounds of such premises, and he shall prevent the loitering of persons on the premises or on or around the grounds thereof. (1960 C., § 729.080(3); 1994 C., § 8.97.110; Ord. No. 70813, § 8(8.97.110), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.120 Number of chairs.

A licensee shall not increase the number of tattoo chairs over the number specified in the drawing filed with the Board of Public Service; provided, however, the Board may authorize such increase upon application by the licensee. (1960 C., § 729.080(4); 1994 C., § 8.97.120; Ord. No. 70813, § 8(8.97.120), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.130 Renewal of licenses.

A. A licensee of a tattoo parlor who has obtained a license under this chapter may obtain a renewal of his license by filing a renewal application as provided by the Board of Public Service, which shall contain the signed statement of the licensee that there has been no change in the information as provided on the original application and drawing; if, however, such change has occurred, the applicant for a renewal license must state the changes. A majority of the Board may approve such application for renewal without the appearance of the licensee before the Board; provided, however, that the

Board may require the licensee to appear before it and to furnish such additional information as it deems necessary.

B. Whenever a majority of the Board of Public Service for good cause refuses to renew a license, it shall notify the licensee of its decision and the reason therefor and shall further inform the licensee that he is entitled to a formal hearing before the Board concerning the renewal. The licensee must file a request for such a formal hearing within fourteen days after the date of the Board's refusal to renew shall be final and nonappealable. After a formal hearing, a majority of the Board may affirm or modify its decision as it deems necessary. (1960 C., § 729.090; 1994 C., § 8.97.130; Ord. No. 70813, § 8(8.97.130), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.140 Revocation of licenses by neighborhood petition.

Whenever a majority of the persons, if any, owning property, and a majority of persons who are registered voters, if any, occupying premises or conducting any business on the main surface floor of premises within a prescribed petition circle drawn by a radius of five hundred feet plus one-half of the width of the front of the tattoo parlor from the center of such premises projected to the street, shall sign and thereafter file a written petition before the Board of Public Service demanding the revocation of the license which has been issued for the tattoo parlor premises within the abovementioned area, such license shall be revoked and be held null and void if a majority of the Board of Public Service finds that such petition is in the form prescribed in this section. (1960 C., § 729.100; 1994 C., § 8.97.140; Ord. No. 70813, § 8(8.97.140), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.150 Revocation of licenses for violation.

In addition to the revocation by neighborhood petition, a majority of the Board of Public Service may suspend any or all of a licensee's licenses for a period of not more than thirty days or any portion thereof, or may revoke any or all of a licensee's licenses for any tattoo parlor premises whenever it is found that the licensee has obtained any license through misrepresentation or fraud or that the licensee has disregarded or violated any of the regulations or laws for tattoo parlor premises. The licensee shall be notified in writing of the charges or infractions. These shall be mailed to the licensee at the address of any of his licensed premises or at the last known residence of the licensee. A public hearing shall be held before the Board of Public Service at a specified time. At such hearing, evidence under oath shall be heard concerning the charges or infractions and the licensee or his attorney may present evidence in answer to defense thereto. Evidence of infractions or violations other than those specified in writing to the licensee may also be presented at such hearing; provided, however, that the licensee shall be given reasonable additional time, if he so requests, to prepare his answer or defense to such additional infractions or violations. The Board of Public Service shall render a decision within fourteen days after completion of the formal hearing and shall mail a copy of its decision to the licensee. Appeals from the decision of the Board may be taken by the licensee as provided by law. Any person whose license has been revoked shall not again be allowed to obtain a tattoo parlor license for two years next thereafter. (1960 C., § 729.110; 1994 C., § 8.97.150; Ord. No. 70813, § 8(8.97.150), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.160 Board of public service to adopt forms and promulgate rules.

The Board of Public Service is authorized to adopt all necessary forms and to enact, promulgate and enforce all rules and regulations necessary for the reasonable interpretation and enforcement of this law. (1960 C., § 729.120; 1994 C., § 8.97.160; Ord. No. 70813, § 8(8.97.160), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

8.97.180 License collector prohibited from issuing license.

A. The License Collector is hereby prohibited from issuing a tattoo parlor license until an authorization therefor has been issued by the Board of Public Service as herein provided.

B. Should any license issued under this chapter be ordered revoked, the License Collector shall immediately upon receipt of such notice of revocation, revoke the tattoo parlor license for tattoo parlors and keepers thereof by written notice addressed to the licensee at the address of any of his licensed premises or at his last known address.

C. Whenever a license shall be revoked by the Board of Public Service, the Secretary of the Board of Public Service shall immediately notify the License

Collector of such revocation. (1960 C., § 729.140; 1994 C., § 8.97.180; Ord. No. 70813, § 8(8.97.180), 7-16-2018; Ord. No. 57404, § 1(part), 1977.)

Chapter 8.98

TAXICABS AND SERVICE CARS

Prior history: Ords. 38232, 40144, 41000, 41426, 44564, 44579, 45117, 48913, 49633, 51131, 51746, 52155, 55037, 56706, 56838, 56839, 57004, 57048, 57106, 57114, 57281, 58046, 58047, 58573; 1948 C. Ch. 65; 1960 C. §§ 305, 306, 307, 308, 309

City Counselor Ops.: 7733, 7780, 8223

Editor's Note:

Ord. 66083 suspends the enforcement of Ch. 8.98 per 67.1804 RSMo.

Sections:

Part I. Definitions and Exemptions

8.98.001 Definitions.

8.98.003 Certain types of vehicles exempt.

Part II. Certificate of Convenience and Necessity

8.98.005 Rules and regulations.

8.98.011 Certification of convenience and necessity—Application.

8.98.017 Certificate of convenience and necessity—Hearing.

8.98.023 Certificate of convenience and necessity—Issuance—Factors.

8.98.035 Additional taxicabs—Fee.

8.98.041 Certificate not transferable.

8.98.047 Discontinuing service.

8.98.053 Amendment of certificate—Reserve taxicab—Fee.

8.98.059 Revocation—Hearing—New license.

8.98.065 Suspension or revocation of certificate of convenience and necessity and licenses—Noncompliance with state statutes.

8.98.071 Suspension or revocation of certificate of convenience and necessity and the licenses—Public welfare.

8.98.077 Suspension or revocation of certificate of convenience and necessity and the licenses—Hearing.

8.98.083 Certificate of convenience and necessity—Vehicle information.

8.98.095 Permitting an unlicensed taxicab driver to operate.

8.98.101 Vehicle driver, appearance.

8.98.107 Taximeters.

8.98.113 Distinctive colors for each company.

8.98.119 Display of taxicab number and business name of certificate holder.

8.98.125 Number of taxicabs in operation.

8.98.131 Offices.

8.98.137 List of drivers to be filed.

8.98.143 Records of drivers and vehicles.

8.98.149 Certificate of inspection.

8.98.155 Inspection—Requirements.

8.98.160 Inspection—Fee—Penalty for violation.

8.98.161 Notice of violation.

8.98.167 Inspection—Failure to appear or pass.

Part III. Taxicabs—Insurance

8.98.170 Required.

8.98.171 Insurance—Licensed firm.

8.98.172 Insurance—Amount.

8.98.173 Insurance—Endorsement.

8.98.183 Accident reports—Contents.

8.98.184 Accident reports—Failure to file—False.

8.98.185 Cancellation or lapse.

8.98.186 Operation without prohibited.

8.98.187 Windshield sticker.

8.98.188 Unsatisfied judgments.

8.98.189 Penalty for violation.

Part IV. Taxicabs—Licensing

8.98.227 Required.

8.98.233 Penalty for violation of Section 8.98.227.

8.98.239 Issuance—Certificate of convenience and necessity—Required.

8.98.245 Other taxes and licensing requirements.

8.98.251 Number—Metal plate—Duplicates.

8.98.257 Fee.

8.98.263 Fastening plate to vehicle.

8.98.269 Transfers—Counterfeit plates.
8.98.275 Display of revoked license.
8.98.277 County taxicabs.

Part V. Regulation for Taxicabs

8.98.281 License required.
8.98.287 Rear view mirror.
8.98.293 Rate on doors—Fare to be displayed on taxicab doors.
8.98.299 Top light.
8.98.305 Posting fares.
8.98.311 Defacing—Posting license.
8.98.317 Receipts—Posting.
8.98.323 Authorization cards.
8.98.329 Radar and short wave radio equipment prohibited.
8.98.335 Meter—Position of meter.
8.98.341 Taxicab marking and equipment.

Part VI. Registration of Taxicab Drivers

8.98.347 Required.
8.98.353 Penalty for violation of Section 8.98.347.
8.98.359 Registration forms.
8.98.365 Sworn statement.
8.98.371 Physical exam—Driving skills.
8.98.377 Photographs.
8.98.383 Change of registration.
8.98.389 Refusal.
8.98.395 Annual report and tax.

Part VII. Taxicab Drivers—Responsibilities and Regulations

8.98.401 When on duty—Duties of driver.
8.98.403 Driver not to leave cab.
8.98.407 Limitation on number of passengers carried.
8.98.413 Soliciting.
8.98.419 More than one customer.
8.98.425 Entering stands.
8.98.431 Drivers' conduct.
8.98.437 Sleeping in cab.
8.98.443 Deceiving passengers.
8.98.449 Discrimination.
8.98.455 Driver appearance.
8.98.461 License suspensions.
8.98.467 Driver's registration and taxicab operator's license suspension.
8.98.468 Suspension—Notification—Grievance.
8.98.469 Revocation or suspension of state chauffeur's license.

Part VIII. Director of Streets—Taxicab Duties and Responsibilities

8.98.473 Stand designations.
8.98.479 Records of drivers.
8.98.485 Suspension and revocation—Causes.
8.98.491 Suspension and revocation—Hearing.
8.98.497 Appeal—Notice—Hearing.
8.98.503 Appeal—Board of public service powers.
8.98.516 Notification.
8.98.530 Additional rules and regulations.
8.98.536 Violation—Penalty.

Part IX. Service Cars

8.98.545 Definitions.
8.98.550 Applicability of part.
8.98.555 License—Required—Application—Certificate of convenience and necessity.
8.98.560 License—Number—Plate.
8.98.565 License—Counterfeit—Transfer.
8.98.570 License—Tax—Limited.
8.98.575 License—Tax—Amount.
8.98.580 Certificate of convenience and necessity—Application—Contents.
8.98.585 Certificate of convenience and necessity—Application—Hearing.
8.98.590 Certificate of convenience and necessity—Application—Routes.
8.98.595 Certificate of convenience and necessity—Application—Schedules.
8.98.600 Certificate of convenience and necessity—Determination of issuance.
8.98.605 Certificate of convenience and necessity—Revocation or suspension—Hearing—Time—Copies.

8.98.610 Certificate of convenience and necessity—Revocation or suspension—Corporations.
8.98.615 Certificate of convenience and necessity—Revocation or suspension—Board powers.
8.98.620 Subpermit number.
8.98.625 Vested rights.
8.98.630 Judgments against owners.
8.98.635 Insurance—Required—Amounts—Endorsement.
8.98.640 Insurance—Filing.
8.98.645 Insurance—Sticker.
8.98.650 Additional cars.
8.98.655 Discontinuance of service.
8.98.660 Transfer of rights.
8.98.665 Inspections.
8.98.670 Rules and regulations.
8.98.675 Stops and stands.
8.98.680 Taking on and discharging passengers.
8.98.685 Penalty for violation.

Part X. Hotel and Motel Courtesy Transportation Vehicles

8.98.690 License required.
8.98.695 Compliance with inspections and operator's license conditions applicable to taxicabs.
8.98.700 Liability insurance required.
8.98.705 Annual license fees.

PART I. DEFINITIONS AND EXEMPTIONS

8.98.001 Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them in this section:

A. "Certificate holder" means any person holding one or more certificates of convenience and necessity issued by the Board of Public Service for the operation to taxicabs.

B. "Director" means the Director of Streets, his deputies, inspectors or agents.

C. "Meter taxicab" means any taxicab which employs a taximeter as the sole means of determining fares.

D. "Person" means any person, firm, corporation, partnership or association of persons of any kind.

E. "Shared ride" means the nonexclusive use of a taxicab by two or more unrelated passengers having either a common point of origin or a common destination point, but traveling in the same general direction.

F. "Street" means any street, alley, avenue, boulevard, court, lane or public place in the City.

G. "Taxicab" means any motor vehicle engaged in the business of carrying persons for hire on the streets of the City, including limousines or similar vehicles rented by the hour, day, or other period of time, with a driver supplied.

H. "Taximeter" means any mechanical instrument or device by which the charge for hire of a taxicab is mechanically calculated, either for distance traveled, or for waiting time, or for both and upon which the charge is plainly registered by means of figures indicating dollars and cents, and which shall be approved by the Board of Public Service as to design.

I. "Zone taxicab" means any taxicab which employs the zone fare system as the sole means of determining fares. (1994 C., § 8.98.001; Ord. No. 58795, § 2(part), 1983.)

City Counselor Ops.: 9342

8.98.003 Certain types of vehicles exempt.

The provisions of this chapter shall not apply to:

A. Motor vehicles used as a sightseeing bus. "Sightseeing bus" means a motor vehicle having a seating capacity in excess of ten persons and used for the purpose of conveying passengers on a sightseeing tour, as that term is generally understood, where the basis for the charges or fees is the time of the trip or the route travelled by such buses on regular trips;

B. Motor vehicles used as service cars. "Service car" means a motor vehicle which is offered for or engaged in carrying passengers, with or without baggage, for hire within the City, without regard to the time consumed or the distance travelled, and the passenger has no control of the route travelled.

C. Motor vehicles run on rails or tracks.

D. Motor vehicles used or maintained by any person, group, firm, corporation, association, city, county, or state agency, or any member thereof, for the primary purpose of transporting employees with their own fleet certified by the Board of Public Service. (1994 C., § 8.98.003; Ord. No. 58795, § 2(part), 1983.)

PART II. CERTIFICATE OF CONVENIENCE AND NECESSITY

8.98.005 Rules and regulations.

The Board of Public Service is authorized and empowered to promulgate rules and regulations, not inconsistent with this chapter, necessary to carry out the provisions of this chapter. The rules and regulations shall be in writing, and shall be available to all certificate holders and their employees, and the public, at the office of the Director of Streets. Any changes in the rules and regulations shall be published in the City Journal, and shall be effective ten days after publication.

A. The Director of Streets, may summarily withdraw the authorization granted in this section from any taxicab company or operator which he finds is not operating in accordance with the regulations of the City, including, but not limited to, regulations with respect to public safety, insurance and equal employment opportunity or who by its operation is engaging in unfair or disruptive competition. Notice of withdrawal shall be sent by registered mail to the taxicab company's listed office in the City, to the Chief of Police of the City and shall be posted in the civil courts building.

B. It shall be unlawful for any taxicab company or operator to drive any taxicab within the City for any purpose after notice of withdrawal of privileges is posted in the civil courts building. (1994 C., § 8.98.005; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.011 Certification of convenience and necessity—Application.

An application for a certificate of convenience and necessity shall be addressed to the Board of Public Service. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant be a corporation, partnership or association of persons of any kind, by its duly authorized officer or agent, and shall state the following facts:

A. The full name and address of the applicant, and if a partnership, the names and addresses of all partners; if a corporation or association of persons, the names and addresses of all the officers and directors thereof;

B. What, if any, previous experience the applicant has had, or if the applicant is a partnership, the partners therein have had, or if the applicant is a corporation or other association of persons, the officers and directors have had in the taxicab business;

C. The number or taxicabs the applicant desires to operate;

D. The passenger capacity of each vehicle according to manufacturer's rating;

E. The type of motor car to be used, horsepower and name of manufacturer;

F. The insurance proposed to be carried, the amount of the insurance and the company issuing the policy. (1994 C., § 8.98.011; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.017 Certificate of convenience and necessity—Hearing.

Upon the filing of an application for a certificate of convenience and necessity, the Board of Public Service shall conduct a hearing thereon to determine the public convenience and necessity. Notice of his hearing shall be given to all persons interested, including the owner of the vehicle, at least three days before the date set for the hearing. The kind of notice, the place of hearing and all facts connected with or relating to the hearing, shall be regulated by the Board of Public Service. (1994 C., § 8.98.017; Ord. No. 58795, § 3(part), 1983.)

8.98.023 Certificate of convenience and necessity—Issuance—Factors.

The Board of Public Service shall have power to issue or refuse to issue any certificate of convenience and necessity as the public welfare, convenience or necessity may require. In determining whether public convenience and necessity require the licensing of taxicabs for which application may be made, the Board of Public Service shall take into consideration whether the demands of the public require the proposed or additional taxicab service within the City; that existing taxicab service is not sufficient to properly meet the needs of the public; the financial responsibility of the applicant; the number, kind, type of equipment and the color scheme proposed to be used; the increased traffic congestion and demand for increased parking space upon the streets of the City, which may result, and whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the granting of the additional license; and other relevant facts as the Board may deem advisable or necessary. (1994 C., § 8.98.023; Ord. No. 58795, § 3(part), 1983.)

8.98.035 Additional taxicabs—Fee.

If the Board of Public Service shall find that the public convenience and necessity requires the operation of additional taxicabs, and shall issue its certificates to such effect, it shall be the duty of the License Collector to issue to the applicant a license for each additional taxicab authorized by the certificate of convenience and necessity issued by the Board of Public Service. Upon issuance of the licenses, the applicant shall pay an annual license tax in the sum of thirty dollars for each taxicab. If any license is issued after the first day of December in any license year, the applicant shall pay a license tax of one-half of the above-mentioned sum for the remainder of the license year. This license tax shall be due and payable on the first day of June of each year, and shall expire one year thereafter, but the license shall be renewed from year to year, upon the payment of the required fee. (1994 C., § 8.98.035; Ord. No. 58795, § 3(part), 1983.)

Cases:

City of St. Louis may require taximeters in taxicabs. *Ex parte Tavling*, 241 S.W. 929 (1922). McQuillin: 26.173 et seq. Taxicab licenses and permits

8.98.041 Certificate not transferable.

No holder of a certificate of convenience and necessity may sell, assign, lease or otherwise transfer the rights and privileges granted thereunder to any other person without first having been granted permission to do so by the Board of Public Service. (1994 C., § 8.98.041; Ord. No. 58795, § 3(part), 1983.)

8.98.047 Discontinuing service.

No person who has been licensed to operate taxicabs may discontinue all or any of them without first filing with the Board of Public Service, a statement, verified by affidavit, of the number of vehicles he desires to discontinue operating, and the reasons therefor, and obtaining permission from the Board of Public Service to discontinue operation as set forth in the statement. The withdrawal of any vehicle from operation, for the purpose of conditioning, overhauling or repairing shall not be considered discontinuing operation under this section. (1994 C., § 8.98.047; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 8162

8.98.053 Amendment of certificate—Reserve taxicab—Fee.

Within sixty (60) days of the effective date of the ordinance codified in this chapter, the Board of Public Service shall amend all existing certificates of convenience and necessity to authorize only the number of taxicabs actually in service. If a certificate authorizes more taxicabs than are actually in service, the holder thereof may retain authority for no more than forty (40) reserve taxicabs. Notice and a right to be heard concerning the number of taxicabs to be authorized shall be given to each certificate holder within said sixty (60) days. For the privilege of having authority for such reserve taxicabs, the holder of said certificate shall pay an annual fee of thirty dollars ($30.00) for each reserve taxicab in addition to the license fee for taxicabs in service. (1994 C., § 8.98.053; Ord. No. 58795, § 3(part), 1983.)

8.98.059 Revocation—Hearing—New license.

Upon complete abandonment of taxicab service for a period of ten consecutive days by any owner or operator of taxicabs, the Board of Public Service, upon a hearing, after three days' notice to the owner or operator, shall recall the certificate of convenience and necessity theretofore issued to the owner or operator, and upon notice thereof by the Board of Public Service to the License Collector, the licenses theretofore issued to the owner or and operator shall be and stand revoked. No license shall thereafter be reinstated or renewed by the License Collector until the owner or operator has obtained a new certificate of convenience and necessity, with like effect as through the owner or operator had never theretofore been granted the certificate and license. (1994 C., § 8.98.059; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 8162

8.98.065 Suspension or revocation of certificate of convenience and necessity and licenses—Noncompliance with state statutes.

Any certificate of convenience and necessity and taxicab licenses which have been issued to any person shall be revoked by the Board of Public Service, upon a hearing, after three days' notice to the operator, if such person has failed, or shall fail, to file with the Secretary of State any report required by the Revised Statutes of Missouri. (1994 C., § 8.98.065; Ord. No. 58795, § 3(part), 1983.)

8.98.071 Suspension or revocation of certificate of convenience and necessity and the licenses—Public welfare.

Any certificate of convenience and necessity and the licenses issued thereunder may be suspended or

revoked at any time after notice and a hearing by the Board of Public Service, when the Board of Public Service shall find operation of the taxicabs thereby authorized inconsistent with public convenience and necessity, or with public safety and welfare. (1994 C., § 8.98.071; Ord. No. 58795, § 3(part), 1983.)

8.98.077 Suspension or revocation of certificate of convenience and necessity and the licenses—Hearing.

Any certificate of convenience and necessity and the licenses issued thereunder may be suspended or revoked at any time after notice and a hearing by the Board of Public Service for any violation of any of the provisions of this chapter by the holder of the certificate of license, or by any person in the operation of the taxicabs. (1994 C., § 8.98.077; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.083 Certificate of convenience and necessity—Vehicle information.

The certificate holder, before placing any vehicle in service, or permitting any vehicle to be placed in service under the certificate of convenience and necessity, shall submit in writing, verified by the affidavit of the applicant, or if the applicant be a corporation, partnership or association of persons of any kind, by its duly authorized officer or agent, a statement of the following facts concerning each vehicle proposed to be operated:

A. The name and address of the owner or owners;

B. The state license number;

C. The motor serial number. (1994 C., § 8.98.083; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.095 Permitting an unlicensed taxicab driver to operate.

The certificate holder shall not permit any taxicab to be operated under that certificate by anyone not registered as a taxicab driver. (1994 C., § 8.98.095; Ord. No. 58795, § 3(part), 1983.)

8.98.101 Vehicle driver, appearance.

It shall be the duty and responsibility of each holder of a certificate of convenience and necessity for the operation of taxicabs and service cars to permit to be operated thereunder only vehicles as are in a thoroughly safe condition for the transportation of passengers, clean, fit, of good appearance and well-painted. It shall further be the duty and responsibility of the holder of a certificate to permit a taxicab or service car to be operated thereunder only by a duly registered driver who shall present a neat and orderly appearance. (1994 C., § 8.98.101; Ord. No. 58795, § 3(part), 1983.)

8.98.107 Taximeters.

All taxicabs (other than limousines or similar vehicles rented by the hour or day with a driver supplied) shall use taximeters as the sole means of determining fares, except those taxicabs providing a "shared ride." Taxicabs providing a "shared ride" shall charge a fixed amount depending upon the distance traveled as predetermined by the City in their transportation brokerage program. The fare schedules of taximeters, including the amount to be charged for waiting periods shall be filed with the Board of Public Service, and the schedules shall be changed only after filing the changes with the Board of Public Service. No operator or certificate holder shall use, or permit to be used, any fare scheduled not filed with the Board of Public Service. The certificate holder shall maintain all taximeters used under the certificate so as to be accurate, and so that they will be well-lighted and easily visible to the passenger. (1994 C., § 8.98.107; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

Cases:

City of St. Louis may impose a taxicab license tax. *Ex parte Tavling,* 241 S.W. 929 (1922).

8.98.113 Distinctive colors for each company.

A. All taxicabs operated by a certificate holder shall possess a color or color combination which is distinctly different from that used by the taxicabs operated by any other such certificate holder, and which shall be registered with and approved by the Board of Public Service. However, when the holders of two or more certificates to operate taxicabs make written application to the Board of Public Service to jointly use the same color or color combinations, the Board of Public Service may authorize such joint usage after holding a public hearing thereon, if it determines that such joint usage is in the public interest.

B. Whenever any such taxicabs, operated by a certificate holder, shall be withdrawn permanently from its authorized service or use, it shall be the duty of the certificate holder to alter, obliterate or otherwise change such color or color combination of such taxicab so that such former taxicab may not be confused with nor

resemble any other taxicab operated by any certificate holder. (1994 C., § 8.98.113; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.119 Display of taxicab number and business name of certificate holder.

Each taxicab shall have the number of the taxicab and the business name of the certificate holder painted inside the taxicab in at least two places in the rear of the taxicab so as to be easily visible to the passenger, in characters not less than one and one-half inches in height. (1994 C., § 8.98.119; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.125 Number of taxicabs in operation.

Any applicant receiving a certificate of convenience and necessity shall be required to have taxicabs operating to the total number specified in that certificate within sixty days of the date of issuance of the certificate. Failure to do so will constitute grounds for revocation of the certificate of convenience and necessity, upon a hearing before the Board of Public Service. The provisions of this section shall not apply to reserve taxicab as provided by Section 8.98.053. (1994 C., § 8.98.125; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9099, 9342

8.98.131 Offices.

Each certificate holder is required to have and maintain an office at which can be found at all times a responsible representative of that certificate holder and to which can be directed any reports of lost articles, complaints, inquiries, and related matters, and shall maintain a listing in all such business directories as are commonly available to the public. (1994 C., § 8.98.131; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.137 List of drivers to be filed.

Each holder of a certificate of convenience and necessity for the operation of taxicabs or service cars shall, on or before the fifth day of each month, file with the Director of Streets a verified list of all taxicab or service car drivers entering or leaving his employ during the preceding month. (1994 C., § 8.98.137; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.143 Records of drivers and vehicles.

Each holder of a certificate of convenience and necessity for the operation of taxicabs or service cars shall keep an accurate, complete, and up-to-date record of the days and time when each taxicab and taxicab driver or service car and service car driver shall have been on duty, and the certificate holder's fleet number of the vehicle assigned to each driver while on duty. The certificate holder shall make the information available to the Director of Streets or his representative on request. (1994 C., § 8.98.143; Ord. No. 58795, § 3(part), 1983.)

8.98.149 Certificate of inspection.

Any applicant receiving a certificate of convenience and necessity, before placing any vehicle in service, or permitting any vehicle to be placed in service under the certificate, shall submit to the Board of Public Service a certificate of inspection from the Director of Streets covering all vehicles proposed to be operated. (1994 C., § 8.98.149; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 9342

8.98.155 Inspection—Requirements.

The Director of Streets shall maintain constant vigilance over all taxicabs and through his deputies and inspectors shall inspect all such vehicles to ascertain that they are in a thoroughly safe condition for the transportation of passengers, clean, fit, of good appearance and well-painted. The inspection shall be made annually before the issuance of any license therefor, and shall be thereafter from time to time, or on the complaint of any person, as often as may be necessary to ascertain that the taxicabs are kept in a condition of continued fitness for public use. At such inspection all equipment requirements of the City Traffic Code may be inspected and will be required whether the equipment is needed for use at that hour or time of the day or not (e.g., wipers, headlights). If, after an inspection, the Director of Streets finds that the inspected vehicle is not in a condition of continued fitness for public use, either by reason of mechanical defect or unclean or disreputable appearance, he shall forbid the use of said vehicle by the owner thereof; provided, that the Director of Streets may allow the owner a 30-day period from the time of the director's finding to make such corrections as are necessary to make the vehicle fit for public use. During that 30-day period the owner may continue to use such vehicle, but such use shall cease at the end of said 30-day period unless the taxicab is

submitted for reinspection and is determined by the Director of Streets to be in a condition of continued fitness for public use. The director may adopt rules and regulations not inconsistent with this section. He shall also test any taximeter for accuracy and make certain it will be well-lighted and visible to the public. Reports in writing of all inspections shall promptly be made and kept on file in the Department of Streets. (1994 C., § 8.98.155; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 7821, 9342, 9668

8.98.160 Inspection—Fee—Penalty for violation.

A. For the annual inspection above prescribed the Director of Streets shall receive a fee of twenty-five dollars ($25.00) for each taxicab inspected, which fee shall be paid by the owner or operator thereof at the time of making such inspection. Nothing herein contained shall be so construed as authorizing the Director of Streets to charge or collect more than one inspection fee per year on the same taxicab.

B. Any person, firm, or corporation, in violation of the foregoing provisions of this section shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than twenty-five dollars ($25.00), nor more than five hundred dollars ($500.00). (1994 C., § 8.98.160; Ord. No. 58795, § 3(part), 1983.)

City Counselor Ops.: 7821, 9342, 9668

8.98.161 Notice of violation.

If the Director of Streets finds that a violation of this chapter has occurred, he may immediately site the holder of the certificate of convenience and necessity under which the violation has occurred to appear before him within fifteen days for a hearing. Upon conclusion of the hearing, the director shall take action he deems proper. (1994 C., § 8.98.161; Ord. No. 58795, § 3(part), 1983.)

8.98.167 Inspection—Failure to appear or pass.

Upon notification by the Director of Streets, a certificate holder shall present a taxicab which is in service for inspection at the place designated. If the taxicab remains in service and is not presented for inspection within ten days of notification, or does not pass inspection within the time set for this (see Section 8.98.155), the Director of Streets shall notify the Board of Public Service, and the Board shall cite the certificate holder to appear before the Board within fifteen days and shown cause why the certificate of convenience and necessity should not be revoked. (1994 C., § 8.98.167; Ord. No. 58795, § 3(part), 1983.)

PART III. TAXICABS—INSURANCE

8.98.170 Required.

Every applicant for a license to operate a taxicab, whether the vehicle is to be operated by the owner or some other person, in addition to the other requirements of this chapter shall maintain and file with the Board of Public Service for each taxicab to be operated a policy of liability insurance which meets the requirements of this chapter. Every applicant for a license to operate a taxicab shall file with the Board of Public Service the required policy of liability insurance. (1994 C., § 8.98.170; Ord. No. 58795, § 4(part), 1983.)

City Counselor Ops.: 8169, 9776

8.98.171 Insurance—Licensed firm.

Insurance required by this part shall be carried in a firm which has been duly licensed or permitted to do an insurance business in the state, and shall be kept and maintained continually in force and effect so long as the applicant shall be licensed to operate taxicabs on the streets of the City. (1994 C., § 8.98.171; Ord. No. 58795, § 4(part), 1983.)

8.98.172 Insurance—Amount.

Insurance as required herein shall be a policy of liability insurance in the sum of twenty-five thousand dollars ($25,000.00) because of bodily injury to or death of one person in any one accident, and in the sum of fifty thousand dollars ($50,000.00) because of bodily injury to or death of two or more persons in any one accident, and in the sum of ten thousand dollars ($10,000.00) because of injury to or destruction of property of others in any one accident as required by RSMo 303.190 (Supp. 1982). If the minimum requirements of said State Safety Responsibility Law shall be increased by action of the General Assembly of the State of Missouri, such increases shall automatically become the minimum requirements of this section unless an ordinance is enacted establishing different minimum requirements prior to the effective date of said state law. (1994 C., § 8.98.172; Ord. No. 58795, § 4(part), 1983.)

8.98.173 Insurance—Endorsement.

There shall be attached to all liability insurance policies issued pursuant to the requirements of this part, the following endorsement:

"In consideration of the premium stated in the policy to which this endorsement is attached, the com-

pany hereby waives a description of the motor vehicles to be insured hereunder and agrees to pay any final judgment for personal injury, including death, resulting therefrom, or damage to property, caused by any and all motor vehicles operated by the assured pursuant to the taxicab license issued by the City of St. Louis, within the limits set forth in the schedule shown hereon, and further agrees that upon its failure to pay any such final judgment, the judgment creditor may maintain an action in any court of competent jurisdiction to compel such payment. Nothing contained in the policy or any endorsement thereon, nor the violation of any of the provisions thereof by the assured, shall relieve the company from liability hereunder or from the payment of such judgment. The policy to which this endorsement is attached shall not expire, nor shall cancellation take effect until after ten days' notice in writing by the company shall have been given to the Board of Public Service in the City of St. Louis at its office in City Hall, said ten days' notice to commence to run from the date notice is actually received at the office of the Board. Attached to and forming a party of policy number _____, issued by _____ company to _____." (1994 C., § 8.98.173; Ord. No. 58795, § 4(part), 1983.)

8.98.183 Accident reports—Contents.

The certificate holder, on or before the fifth day of each month, shall file with the Board of Public Service a report showing the number of accidents in which any taxicab owned and/or operated by him was involved during the preceding month, the nature of the damage, if any, to person or property resulting therefrom, the name and address of all persons who have outstanding claims because of any taxicab accident, and the amount, if any, paid during the preceding month in settlement of claims, including those in suit. (1994 C., § 8.98.183; Ord. No. 58795, § 4(part), 1983.)

8.98.184 Accident reports—Failure to file—False.

The failure to file the report required by Section 8.98.183 within the time provided for, or the filing or causing or intentionally permitting the filing of a false report, shall be a violation and shall also be ground for forfeiting the principal's certificate of convenience and necessity and forfeiting his license. (1994 C., § 8.98.184; Ord. No. 58795, § 4(part), 1983.)

8.98.185 Cancellation or lapse.

If any policy of insurance covering any or all of the taxicabs authorized to be operated under a certificate of convenience and necessity be cancelled, or for any reason, including the expiration of its terms be permitted to lapse, and the holder of the certificate of convenience and necessity fails to replace it immediately with another policy of insurance fully complying with the provisions of this chapter, the certificate of convenience and necessity and the taxicab licenses issued thereunder shall be ipso facto suspended. The certificate of convenience and necessity may be reinstated by the Board of Public Service upon application, with or without a hearing, upon compliance in full with all the provisions of this chapter. If the Board of Public Service reinstates the certificate of convenience and necessity, the License Collector, upon notice from the Board, shall reinstate the taxicab license issued thereunder. (1994 C., § 8.98.185; Ord. No. 58795, § 4(part), 1983.)

8.98.186 Operation without prohibited.

It shall be unlawful for any person to operate or cause to be operated any taxicab upon any public street in the City unless the required policy of insurance for the taxicab shall have been filed with the Board of Public Service, and be in full force and effect. (1994 C., § 8.98.186; Ord. No. 58795, § 4(part), 1983.)

8.98.187 Windshield sticker.

Upon satisfactory evidence of compliance in full with all the provisions of this part relative to liability insurance the Board of Public Service, on the first of each month, shall issue to the owner or operator of each taxicab a windshield sticker showing the month and year for which issued. This sticker shall be applied to the lower right-hand corner of the windshield of the taxicab for which issued, and shall not be removed or transferred during the month for which it is issued. Only one such sticker will be displayed on the windshield at one time, meaning upon the issuance of a new sticker each month the old one must be removed. (1994 C., § 8.98.187; Ord. No. 58795, § 4(part), 1983.)

8.98.188 Unsatisfied judgments.

In the event of any final judgment against the owner or operator of any taxicab for injury to or death of, any person, or damage to property from the negligence of the owner or operator or for any reason regardless of fault, remaining unsatisfied for a period of thirty days, the Board of Public Service, upon com-

plaint of the owner of the judgment, or of any other person shall forthwith revoke the certificate of convenience and necessity and the taxicab license of all the taxicabs of the owner or operator. (1994 C., § 8.98.188; Ord. No. 58795, § 4(part), 1983.) City Counselor Ops.: 7618, 9556, 9776, 9902

8.98.189 Penalty for violation.

Any person who violates, or who fails to comply with, or who permits or causes any person in his employ to violate or fail to comply with any of the provisions of Sections 8.98.173 through 8.98.186 shall be deemed guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not less than twenty-five dollars nor more than five hundred dollars or by imprisonment for not more than six months, or by both fine and imprisonment. (1994 C., § 8.98.189; Ord. No. 58795, § 4(part), 1983.)

PART IV. TAXICABS—LICENSING

City Counselor Ops.: 8237, 9342

8.98.227 Required.

No person shall engage in the business of operating a taxicab upon the streets of the City without first obtaining a license so to do. This provision shall not apply to any person engaged in the business operating a taxicab upon the streets of the City solely for the purpose of discharging a passenger or a parcel of merchandise which was picked up at a location outside of the City limits. (1994 C., § 8.98.227; Ord. No. 58795, § 5(part), 1983.)

City Counselor Ops.: 8378

8.98.233 Penalty for violation of Section 8.98.227.

Any person violating the provisions of Section 8.98.227 shall be punished as follows:

A. Any person convicted of a first offense shall be punished by a fine of not less than fifty dollars;

B. Any person convicted twice within 24 months, shall be punished by a fine of not less than two hundred dollars;

C. Any person convicted three times or more within 24 months, shall be punished by a fine of not less than five hundred dollars. (1994 C., § 8.98.233; Ord. No. 58795, § 5(part), 1983.)

8.98.239 Issuance—Certificate of convenience and necessity—Required.

The license required by Section 8.98.227 shall be issued by the License Collector when the applicant thereof has obtained a certificate of convenience and necessity from the Board of Public Service, as prescribed in this part and has complied with all other provisions of this chapter applicable to the obtaining or issuing of the license. (1994 C., § 8.98.239; Ord. No. 58795, § 5(part), 1983.)

8.98.245 Other taxes and licensing requirements.

The license tax required by this part shall be a tax on the business of conveying passengers over the streets in the City by means of taxicabs, and nothing in this part shall be so construed as to exempt the owner from paying to the City the tax imposed by the City in licensing motor vehicles or automobiles to be operated on its streets, or any registered tax which the City may levy on motor vehicles or automobiles, or the tax which the City levies on motor vehicles or automobiles as personal property. Nor shall anything in this part exempt the owner or driver of a motor vehicle from the qualification which the City or the state may require of persons who operate motor vehicles or automobiles. (1994 C., § 8.98.245; Ord. No. 58795, § 5(part), 1983.)

8.98.251 Number—Metal plate—Duplicates.

Upon the payment of the license tax provided for in this part, the License Collector shall assign to each taxicab a distinctive number, and shall issue to the owner a metal plate with this number thereon, and a license to operate the taxicab. The license shall bear the number so assigned, and shall also state that the vehicle is a taxicab, and that it is to be driven or operated by the owner or an employee. In the event of the loss, mutilation or destruction of the license or plate, the owner may obtain from the License Collector a duplicate thereof upon filing an affidavit showing that the license or plate has been lost, mutilated or destroyed, and paying a fee of one dollar therefor. (1994 C., § 8.98.251; Ord. No. 58795, § 5(part), 1983.)

8.98.257 Fee.

If the applicant has already paid a taxicab license for any one year, the license fee for that taxicab shall be adjusted so that the amount to be paid for the balance of the year shall not exceed the rate of twenty-five dollars. (1994 C., § 8.98.257; Ord. No. 58795, § 5(part), 1983.)

8.98.263 Fastening plate to vehicle.

The number plate provided for in this part shall be securely fastened to the vehicle, for which it has been

issued, where it can be readily seen. (1994 C., § 8.98.263; Ord. No. 58795, § 5(part), 1983.)

8.98.269 Transfers—Counterfeit plates.

No plate or license shall be used which has not been duly issued by the License Collector for the particular vehicle on which the plate or license is to be used, nor shall anyone use or permit to be used any false or counterfeit plate or license. When any vehicle for which the plate or license has been issued shall be bona fide and permanently withdrawn from service and replaced by another vehicle, the plate or license may be transferred from the abandoned vehicle to the replacing vehicle upon application therefor to the License Collector, and upon the payment of a fee of one dollar. (1994 C., § 8.98.269; Ord. No. 58795, § 5(part), 1983.)

8.98.275 Display of revoked license.

Whenever any license to operate any taxicab has been revoked, as provided in this part, it shall thereafter be unlawful to display or use the license as authority for the operation of the taxicab in which it may be so used or displayed. If so displayed illegally, it shall be seized and held by the Director of Streets. (1994 C., § 8.98.275; Ord. No. 58795, § 5(part), 1983.)

8.98.277 County taxicabs.

Taxicabs and operators licensed under appropriate ordinances of St. Louis County or municipalities in St. Louis County which are substantially equivalent to the regulations of this City shall be permitted to deliver within the City passengers and parcels originating in St. Louis County and will be permitted to pick up passengers and parcels on order within the City for delivery in the county. It shall be unlawful for any county cab to pick up a "hailing" customer within the City.

A. It shall be unlawful for any cab company authorized under this section to operate from one point to another point within the City.

B. All taxicabs from St. Louis County must submit a request to the Board of Public Service, requesting permission to operate in the City as authorized by Subsection A of this section. Said request shall be accompanied with an insurance policy in the amounts authorized by Section 8.98.172.

C. The Director of Streets may summarily withdraw the authorization granted in this section from any taxicab company or operator which he finds is not operating substantially in accordance with the regulations of the City, including, but not limited to, regulations with respect to public safety, insurance and equal employment opportunity or who by its operation is engaging in unfair or disruptive competition. Notice of withdrawal shall be sent by registered mail to the taxicab company's listed office in the county, to the Chief of Police of the City and shall be posted in the civil courts building.

D. It shall be unlawful for any taxicab company or operator to drive any taxicab within the City for any purpose after notice of withdrawal or privileges is posted on the civil courts building. (1994 C., § 8.98.277; Ord. No. 58795, § 5(part), 1983.)

PART V. REGULATION FOR TAXICABS

8.98.281 License required.

It shall be unlawful for any person to solicit or in any manner to aid or abet in the procuring of passengers for any motor vehicle offering transportation for hire and of the type commonly known as taxicab, or service car or motorbus when the vehicle shall not be properly licensed to transport passengers for hire, excluding state or federally owned transportation corporations. Any person who violates any of the provisions of this section shall be guilty of a misdemeanor. (1994 C., § 8.98.281; Ord. No. 58795, § 6(part), 1983.)

City Counselor Ops.: 10151

8.98.287 Rear view mirror.

No person, firm or corporation shall operate or cause to be operated upon the streets of this City a taxicab or service car without having an exterior left side rear view mirror on the taxicab or service car for the use of the operator of the taxicab or service car while operating same upon the streets of the City. The exterior left side rear view mirror shall be affixed to the body of the taxicab or service car so as to enable the operator thereof to observe from the driver's position through the mirror traffic to the rear of the vehicle. (1994 C., § 8.98.287; Ord. No. 58795, § 6(part), 1983.)

8.98.293 Rate on doors—Fare to be displayed on taxicab doors.

The rate to be asked by the person in charge of any taxicab, whether the rate of fare be computed upon a mileage basis or on the basis of time consumed by the passenger in traveling in the taxicab, shall, at all times when the taxicab is in service, be conspicuously displayed and permanently affixed in letters not less than

one (1) inch high on both sides of the front doors of the taxicab. Taxicabs providing a "shared ride" through the City's transportation brokerage program shall, at all times when the taxicab is in service, be required to display the words "Shared Ride Program" in letters not less than four inches high on both sides of the front doors of the taxicab. (1994 C., § 8.98.293; Ord. No. 58795, § 6(part), 1983.)

8.98.299 Top light.

All taxicabs must be equipped with a top light permanently attached to the roof of the cab, which may either have the name of the company printed on it, or the word taxi or cab. Such top light will normally be illuminated during hours of darkness or whenever headlights are required. (1994 C., § 8.98.299; Ord. No. 58795, § 6(part), 1983.)

8.98.305 Posting fares.

All taxicabs shall display a placard, eight by ten inches approved by the Board of Public Service, which shall indicate the complete fare rate, and which shall be mounted inside the taxicab so as to be easily discernible to the passenger at all times. (1994 C., § 8.98.305; Ord. No. 58795, § 6(part), 1983.)

City Counselor Ops.: 9342

8.98.311 Defacing—Posting license.

Any person who misrepresents, defaces, removes or obliterates any entry upon his taxicab operator license or permits the same to be done, shall be punished by the revocation of his license. Each licensed driver shall post on the vehicle dash board in the taxicab or service car operated by him, his taxicab or service car operator's license so that it can be easily seen by persons hiring such taxicab or service car. Such license shall be in a form as prescribed by the Register and shall be illuminated after sundown with a suitable light so arranged as to throw a continuous and steady light thereon so that the same shall be clearly discernible to and can be read by the passengers in the rear seat. (1994 C., § 8.98.311; Ord. No. 58795, § 6(part), 1983.)

City Counselor Ops.: 9342

8.98.317 Receipts—Posting.

The driver of any taxicab, after receiving full payment for a trip, shall upon request give a receipt to the passenger for the payment. All receipts shall contain serial numbers registered with the holder of the certificate of convenience and necessity under which the taxicab is operated, and shall be approved by the Board of Public Service as to form. A statement "Receipts available upon request" shall be mounted inside every taxicab so as to be easily discernible to the passenger at all times. The certificate holder shall maintain adequate records setting forth the name of each taxicab driver in his employ and the serial numbers of the receipts issued by that driver within the three-month period preceding the current date. (1994 C., § 8.98.317; Ord. No. 58795, § 6(part), 1983.)

City Counselor Ops.: 9342

8.98.323 Authorization cards.

A. The holder of a certificate of convenience and necessity for the operation of taxicabs and service cars shall furnish weekly to each driver, before the driver goes on duty, a card either three inches high by five inches wide, or nine inches high by eight inches wide, in a form to be approved by the Director of Streets, which shall contain the following information:

1. Name of taxicab driver;
2. Name of company;
3. Current date;
4. The certificate of holder's fleet number of the taxicab assigned to the driver;
5. Period for which the assignment is effective;
6. Signature of company's agent or official stamp of company.

B. The card shall constitute the driver's authorization to drive a taxicab under the certificate for the period indicated. A taxicab driver shall have the card in his possession at all times while operating a taxicab which is on duty, and shall display it, upon request, to any police officer, or agent of the Director of Streets. This Director of Streets shall suspend the taxicab operator's license of any driver who fails to display the authorization on demand when he is found to be operating a taxicab which is on duty, as follows:

1. First offense, one to seven days' suspension;
2. Second offense in a twelve-month period, eight to thirty days' suspension;
3. Third offense in a twelve-month period, thirty-one to ninety days' suspension.

C. Such registration shall be kept by the director during said suspension, and such suspension shall not begin until the registration is surrendered. (1994 C., § 8.98.323; Ord. No. 58795, § 6(part), 1983.)

8.98.329 Radar and short wave radio equipment prohibited.

It shall be unlawful to have in any taxicab licensed by the City, whether in use or not, any short wave radio monitor (scanner) or any radar detection device. This shall not mean that such vehicles may not be equipped with AM-FM radios, citizen band radios or company operated radios. Any equipment found in any vehicle described herein which is unlawful shall immediately be seized and disposed of by rules established by the Director of Streets. The fact that the equipment was seized will have no affect on the prosecution of charges resulting from possession of the prohibited items. (1994 C., § 8.98.329; Ord. No. 58795, § 6(part), 1983.)

8.98.335 Meter—Position of meter.

All taxicabs shall have the taximeter mounted so as to be easily visible at all times by the passenger. (1994 C., § 8.98.335; Ord. No. 58795, § 6(part), 1983.)

8.98.341 Taxicab marking and equipment.

It shall be unlawful to operate a vehicle, displaying the distinctive characteristics of a taxicab without being a registered authorized taxicab service vehicle (top light, door markings, meter, etc.). (1994 C., § 8.98.341; Ord. No. 58795, § 6(part), 1983.)

PART VI. REGISTRATION OF TAXICAB DRIVERS

8.98.347 Required.

No person shall drive or operate a taxicab upon the streets of the City unless the person has a valid taxicab operator's license and is duly registered with the Director of Streets under the provisions of this chapter. This section and the prohibition herein shall not be applicable to any person who shall drive or operate a taxicab upon the streets of the City solely for the purpose of discharging a passenger or a parcel of merchandise which was picked up at a location outside of the City limits, or picked up in the City for delivery outside of the City. (1994 C., § 8.98.347; Ord. No. 58795, § 7(part), 1983.) City Counselor Ops.: 9342, 10151

8.98.353 Penalty for violation of Section 8.98.347.

Any person convicted of a violation of Section 8.98.347 shall be punished as follows:

A. Any person convicted of a first offense shall be punished by a fine of not less than fifty dollars.

B. Any person convicted twice within twenty-four months shall be punished by a fine of not less than two hundred dollars.

C. Any person convicted three times or more within twenty-four months shall be punished by a fine of not less than five hundred dollars. (1994 C., § 8.98.353; Ord. No. 58795, § 7(part), 1983.)

8.98.359 Registration forms.

A. Before a person operates a taxicab, the certificate holder of said taxicab shall file with the Director of Streets a registration form (in a form prescribed by the Director of Streets) along with the person's state chauffeur's license. The registration form shall contain the person's full name, residence, place or places of residence for the past five years, sex, age, race, height, color of eyes and hair, place of birth, length of time the person has resided in the City, citizenship of the person, places of previous employment, whether single or married, whether person was previously licensed as a chauffeur, whether the license has been revoked, and if so for what cause. The form shall be signed and sworn to by the person and filed in the Department of Streets as a permanent record.

B. For the above-described forms the Director of Streets shall receive a fee of five dollars ($5.00) for each form submitted, which fee shall be paid for by the person.

C. Any person, firm, or corporation, providing false information to misconstrue the facts required by the foregoing of this section shall be deemed guilty of a misdemeanor and, upon conviction, shall be fined the sum of not less than twenty-five dollars ($25.00), nor more than five hundred dollars ($500.00). (1994 C., § 8.98.359; Ord. No. 58795, § 7(part), 1983.)

City Counselor Ops.: 9342, 9766

8.98.365 Sworn statement.

The certificate holder shall file with each form the person's sworn statement setting forth each and every conviction of the applicant for violations of federal, state or City laws, statutes or ordinances, or, in lieu thereof, a true and complete summary in writing of the person's police record as indicated by the records of the City Police Department and a certified copy of the applicant's Missouri driving record. The statement or summary of the applicant's police record shall be considered as part of the form. (1994 C., § 8.98.365; Ord. No. 58795, § 7(part), 1983.)

City Counselor Ops.: 9342

8.98.371 Physical exam—Driving skills.

Each person desiring to operate a taxicab shall be required to submit to physical examination and if required by the Director of Streets, demonstrate his skill and ability to safely handle the vehicle. (1994 C., § 8.98.371; Ord. No. 58795, § 7(part), 1983.)

City Counselor Ops.: 9342

8.98.377 Photographs.

The form shall be accompanied by four recent photographs of the person, at a size determined by the Director of Streets, two to be presented to Identification Section, Room 505, Police Headquarters, Tucker and Clark, one to be retained by the Director of Streets, and the other to be returned to the person to be displayed in the taxicab in accordance with Section 8.98.311. (1994 C., § 8.98.377; Ord. No. 58795, § 7(part), 1983.)

City Counselor Ops.: 9342

8.98.383 Change of registration.

For a driver already registered with one certificate holder, who wishes to transfer to another certificate holder, this act may be complied with by the filing of a change of registration form, in a format to be developed by the Director of Streets. (1994 C., § 8.98.383; Ord. No. 58795, § 7(part), 1983.)

8.98.389 Refusal.

When the certificate holder submits the form, the person shall be a validly registered taxicab driver and may be hired by the certificate holder. Such registration of a driver shall be subsequently revoked as well as suspension of his taxicab operator's license by the Director of Streets at any time that he finds that:

A. There is a misrepresentation, omission, or fraudulent or false statement on the form or person's sworn statement; or

B. The person has been convicted of a felony or misdemeanor involving moral turpitude on or subsequent to November 17, 1959; or

C. The person has been convicted of violating any state or municipal law, statute or ordinance by driving a motor vehicle under the influence of intoxicating liquor or narcotic drug within a two-year period to the filing of the application; or

D. The person has been convicted of violating any state or municipal law, statute or ordinance by leaving the scene of an accident; knowing that injury has been caused to a person or damage has been caused to property, without stopping and giving his name and residence, including city and street address, to the injured party, or to a police officer, or to other persons as required by law, within a two-year period to filing of the form; or

E. The person is physically unqualified to operate a motor vehicle; or

F. The person has been convicted of any felony in the commission of which a motor vehicle is used, on or subsequent to November 17, 1959; or

G. The person is a habitual drunkard or is addicted to the use of narcotic drugs; or

H. The person has failed to answer any taxicab or traffic violation summons as indicated by the records of the City Courts;

I. Operating any vehicle as a taxicab not licensed as a taxicab by the City or St. Louis County. (1994 C., § 8.98.389; Ord. No. 58795, § 7(part), 1983.)

City Counselor Ops.: 8555, 8694, 9342, 9621

8.98.395 Annual report and tax.

Each certificate holder shall annually, between January 1 and January 31 of each year, submit an annual renewal registration form for each driver, containing the same information and meeting the same requirements as the original registration form furnished by the Director of Streets, and each driver shall pay a charge of five dollars at the time of submission. A five dollar penalty will be imposed upon the certificate holder for all annual renewal registration received after January 31 of each year. (1994 C., § 8.98.395; Ord. No. 58795, § 7(part), 1983.)

PART VII. TAXICAB DRIVERS—RESPONSIBILITIES AND REGULATIONS

8.98.401 When on duty—Duties of driver.

A taxicab driver shall be presumed to be on duty if he is in on record as being on duty at the office of the certificate holder by whom he is employed, or if he has custody of a taxicab which is parked at a taxicab stand or other place, public or private, in anticipation of patronage or in furtherance of procurement of patronage. Any taxicab or service car which is being operated, or is parked or stopped upon any public street, alley or other public place, shall be presumed to be on duty if the taxicab or service car does not display, in the front window thereof, so to be easily discernible, a placard or sign containing the words "Not For Hire" in characters

at least three inches high. (1994 C., § 8.98.401; Ord. No. 58795, § 8(part), 1983.)

City Counselor Ops.: 8827, 9342

8.98.403 Driver not to leave cab.

No taxicab driver may withdraw to a greater distance than five feet of his/her taxicab while on duty and parked at a taxicab stand or other authorized public place, the only exceptions being that a driver may withdraw to greater distance of five feet during an emergency wherein the life or property of any individual is threatened; or only for a period not to exceed fifteen minutes for a physical necessity. (1994 C., § 8.98.403; Ord. No. 58795, § 8(part), 1983.)

8.98.407 Limitation on number of passengers carried.

No taxicab will carry more than five passengers or any amount which exceeds the manufacturer's rating for that vehicle, as approved by the Board of Public Service in the certificate of convenience and necessity. (1994 C., § 8.98.407; Ord. No. 58795, § 8(part), 1983.)

8.98.413 Soliciting.

While a taxicab or service car is on a public street or place, passengers shall be solicited by no other means than by having a printed sign on the vehicle indicating, in addition to rate of fare, that the vehicle is for hire. It shall be unlawful for any taxicab or service car driver to solicit business at any time in any other manner in any place or public accommodation, use, or travel, including the terminal buildings of any form of public transportation, sidewalks, streets and alleys, and buildings open to the general use of the public; provided, however, that a taxicab driver, when his taxicab is lawfully parked, may raise one arm and hand to indicate that his taxicab is not engaged at that time. No driver or chauffeur of any such vehicle mentioned herein shall seek employment by repeatedly and persistently driving his vehicle in and about a short space, however a driver or chauffeur may solicit employment by driving through any public street or place without stops other than those due to obstruction of traffic thereon or to temporary traffic rules; may pass and repass before any theatre, hall, hotel, restaurant, place of amusement, public resort, club, railway station or other place of public gatherings; provided, that after passing any such place he shall not repass the same until he shall have gone a distance of at least four blocks upon the streets of the City. Nothing in this section shall be so construed as to permit the driver or chauffeur of any such vehicle, for that purpose of repassing any such place, to make a U-turn in the street on which the place is located. (1994 C., § 8.98.413; Ord. No. 58795, § 8(part), 1983.)

8.98.419 More than one customer.

It shall be unlawful for the driver of a meter taxicab which has been engaged by a first customer to permit any other passenger to enter the taxicab without first obtaining the consent of the first customer. However, drivers of taxicabs providing only passengers participating in the "shared ride" program may pick up additional passengers, up to the capacity of the taxicab, without receiving the permission of those already riding in the taxicab. (1994 C., § 8.98.419; Ord. No. 58795, § 8(part), 1983.)

8.98.425 Entering stands.

Taxicab drivers entering a taxicab stand shall do so from the rear, and shall progress toward the front thereof whenever the opportunity to do so is present. The driver in the foremost position shall be entitled to serve the first customer arriving at that location; provided, however, that should the customer elect to employ any other taxicab, he shall have a free choice thereof at all times. When the physical design of the taxicab stand does not permit the orderly ingress of taxicabs as described, the Director of Streets shall prescribe rules for the use thereof as he shall deem necessary, and shall notify each holder of a certificate of convenience and necessity for the operation of taxicabs of the rules, in writing. (1994 C., § 8.98.425; Ord. No. 58795, § 8(part), 1983.)

8.98.431 Drivers' conduct.

No taxicab driver, while on duty, shall conduct himself in a boisterous, vociferous, belligerent or otherwise offensive manner in any place or public accommodation, use, or travel. (1994 C., § 8.98.431; Ord. No. 58795, § 8(part), 1983.)

8.98.437 Sleeping in cab.

No taxicab driver shall sleep in a taxicab when the taxicab is on duty, and is parked in a street, alley, or other public place. (1994 C., § 8.98.437; Ord. No. 58795, § 8(part), 1983.)

8.98.443 Deceiving passengers.

No person owning, operating or in charge of any taxicab shall willfully deceive any passenger who may

desire to ride, or who may ride, in the vehicle, as to its destination or as to the rate or charges therefor, or cause a passenger to be conveyed to a place other than that directed by him or not by the most direct route. (1994 C., § 8.98.443; Ord. No. 58795, § 8(part), 1983.)

City Counselor Ops.: 8001

Editor's Note:

The third word in the first sentence of this section has been editorially amended to read "owning" rather than "owing."

8.98.449 Discrimination.

It shall be the duty of every person owning, operating or in charge of a taxicab to permit any person to hire his taxicab; provided, that the former may refuse to let the taxicab to anyone who is intoxicated or may present a personal safety hazard, and shall not knowingly or willing let the taxicab to any person in furtherance of any unlawful purpose. (1994 C., § 8.98.449; Ord. No. 58795, § 8(part), 1983.)

8.98.455 Driver appearance.

The driver of any taxicab registered under this chapter shall present at all times while on duty, a neat and orderly appearance. The Director of Streets is authorized to suspend for a period not to exceed one week the taxicab driver's registration and taxicab operator's license of any driver for failing to comply with this section, and he may take any reasonable measures he deems necessary to implement this section. (1994 C., § 8.98.455; Ord. No. 58795, § 8(part), 1983.)

City Counselor Ops.: 9342

8.98.461 License suspensions.

The Director of Streets is authorized to suspend for a period not to exceed one week, the taxicab driver's license of any driver, or the taxicab license of one or more taxicabs, or both, for a violation of any of the provisions of this chapter, in addition to the other penalties provided. (1994 C., § 8.98.461; Ord. No. 58795, § 8(part), 1983.)

8.98.467 Driver's registration and taxicab operator's license suspension.

The taxicab driver's registration and taxicab operator's license of a taxicab driver finally convicted, subsequent to March 27, 1962, of violating any state or municipal law by drunkenness, participation in any affray, disturbance of the peace, gambling, or use of obscene or profane language, when the violation shall have occurred while the taxicab driver is on duty, shall be suspended by the Director of Streets for a period of thirty days. A taxicab driver finally convicted of such a violation shall report the final conviction to the Director of Streets within five days of the date thereof. Should any taxicab driver fail to report the final conviction as provided in this section within five days of the date thereof, upon discovery of the fact, the Director of Streets shall suspend the registration and taxicab operator's license of the taxicab driver for a period of thirty days in addition to the thirty-day suspension in this section. (1994 C., § 8.98.467; Ord. No. 58795, § 8(part), 1983.)

8.98.468 Suspension—Notification—Grievance.

The Director of Streets shall notify the taxicab driver and his certificate holder of the suspension in writing. The period of suspension shall commence from the date of surrender of operator's license (driver) to the Director of Streets, which shall be made within thirty days of the date of conviction for the offense, or within thirty days of the date of release from any incarceration incurred thereunder, whichever date shall last occur. A taxicab driver aggrieved by reason of a suspension of his taxicab driver's license and registration by the Director of Streets, through the action of an agent of the Director of Streets, shall be entitled to a public hearing by the Director of Streets. Application for a hearing shall be accompanied by filing a fee of five dollars. The fee shall be refunded to a taxicab driver if the Director of Streets shall find in his favor. (1994 C., § 8.98.468; Ord. No. 58795, § 8(part), 1983.)

8.98.469 Revocation or suspension of state chauffeur's license.

Each taxicab or service car driver whose state chauffeur's license has been suspended or revoked shall no longer be registered as of the date of said suspension or revocation. The Director of Streets shall restore the registration upon presentation to him of evidence that the state chauffeur's license has been restored. (1994 C., § 8.98.469; Ord. No. 58795, § 8(part), 1983.)

PART VIII. DIRECTOR OF STREETS—TAXICAB DUTIES AND RESPONSIBILITIES

8.98.473 Stand designations.

The Director of Streets is authorized and required to establish bus stops, taxicab stands and stands for other vehicles for hire on public streets in places and in number as he shall determine to be of the greatest benefit and convenience to the public. Every bus stop,

taxicab stand or hackney stand shall be designated by appropriate signs. (1994 C., § 8.98.473; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8304

8.98.479 Records of drivers.

The Director of Streets shall keep or cause to be kept a record of each registered driver, of all renewals, suspensions or revocations of licenses, which record shall be kept with the certificate of convenience and necessity. A record shall be kept of each person owning or operating a vehicle license under this chapter, with the license number and description of the vehicle, and the dates of inspection thereof. These records shall be open to inspection by the public and shall be public records, extracts of which may be certified for use as evidence by the Director of Streets, or by one of his deputies. (1994 C., § 8.98.479; Ord. No. 58795, § 9(part), 1983.)

8.98.485 Suspension and revocation—Causes.

The Director of Streets shall suspend or revoke the registration and taxicab operator's license of a taxicab driver after a public hearing is conducted by the Director of Streets, upon finding that:

A. There is a misrepresentation, omission, or fraudulent or false statement in the taxicab driver's sworn statement; or

B. The taxicab driver has been convicted of a felony or misdemeanor involving moral turpitude on or subsequent to the date of issuance of current taxicab driver's license; or

C. The taxicab driver has been convicted of violating any state or municipal law, statute or ordinance by driving a motor vehicle under the influence of intoxicating liquor or narcotic drug subsequent to the date of issuance of the current taxicab driver's license; or

D. The taxicab driver has been convicted of violating any state or municipal law, statute or ordinance by leaving the scene of an accident knowing that any injury has been caused to a person or damage has been caused to property, without stopping and giving his name and residence, including city and street address, to the injured party, or to a police officer, or to other persons as required by law, subsequent to the date of issuance of the current taxicab driver's license; or

E. The taxicab driver is physically unqualified to operate a motor vehicle; or

F. The taxicab driver has changed address and failed to notify the Director of Streets; or

G. The taxicab driver has failed to answer any taxicab or traffic violation summons as indicated by the records of the Clerk of the City Courts. (1994 C., § 8.98.485; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8555, 8575, 8586, 9342

8.98.491 Suspension and revocation—Hearing.

The Director of Streets shall serve written notice of the hearing to suspend or revoke a taxicab driver's registration by mailing the notice by registered mail to the operator's address as indicated on the operator's current registration, at least fourteen days before the hearing. The notice shall also set forth the reason or reasons for the suspension or revocation of the operator's registration. (1994 C., § 8.98.491; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8555, 8575, 8586, 9342

8.98.497 Appeal—Notice—Hearing.

Any person applying to be registered as a taxicab driver, or any taxicab operator aggrieved by the decision of the Director of Streets made pursuant to the provisions of this chapter may appeal the decision to the Board of Public Service by filing a notice of appeal on the form supplied by the Board within fifteen days of the rendition of the decision by the Director of Streets. The Board of Public Service shall, within a reasonable time thereafter, conduct a public hearing on the appeal and shall notify the appellant of the date, time and place of the hearing personally or by registered mail at the address indicated on the notice of the appeal. (1994 C., § 8.98.497; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8586, 9342, 9591, 9612, 9621

8.98.503 Appeal—Board of public service powers.

The Board of Public Service, after a duly authorized hearing, may affirm, reverse or modify the decision of the Director of Streets and to that end shall possess all the powers invested in the Director of Streets by this chapter. (1994 C., § 8.98.503; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8586, 9342, 9591, 9612, 9621

8.98.516 Notification.

Whenever a taxicab driver's registration has been suspended or revoked, the Director of Streets or the Board of Public Service shall so notify the Police Department. It shall be unlawful for any taxicab or service

car driver whose registration and taxicab operator's license has been suspended or revoked, as provided, to drive a taxicab or service car. (1994 C., § 8.98.516; Ord. No. 58795, § 9(part), 1983.)

City Counselor Ops.: 8586, 9342, 9591, 9612, 9621

8.98.530 Additional rules and regulations.

The Director of Streets is authorized and empowered to establish additional rules and regulations, not inconsistent with this chapter, as may be reasonable and necessary to carry out and enforce its provisions. (1994 C., § 8.98.530; Ord. No. 58795, § 9(part), 1983.)

8.98.536 Violation—Penalty.

Any person, firm, or corporation, who violates or who fails to comply with, or who permits or causes any person in his employ to violate or fail to comply with any of the provisions of Sections 8.98.005 through 8.98.705 unless otherwise specified, shall be deemed guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not less than twenty-five dollars or not more than five hundred dollars or by imprisonment for not more than six months, or by both fine and imprisonment. (1994 C., § 8.98.536; Ord. No. 58795, § 11, 1983.)

PART IX. SERVICE CARS

Prior code history: 1948 C. Ch. 65 §§ 13—42

8.98.545 Definitions.

Unless it appears that a different meaning is intended, the following words shall, for the purpose of this part, have the meaning given to them by this section:

A. "Owner" or "operator" or "owner or operator" means the applicant for or the person or corporation to whom a certificate of convenience and necessity is issued pursuant to this chapter.

B. "Person" means and includes any person, firm, corporation, partnership or association of persons of any kind.

C. "Service car" means and includes all motor vehicles which are offered for hire, or engaged in carrying passengers, with or without baggage, for hire within the City, without regard to the time consumed or the distance traveled, and the passengers having no control over the route of passage or carriage, and the fare or charge for the use of which is made on the basis of carrying passengers from one designated place to another along a definite route.

D. "Street" means and includes any street, alley, avenue, boulevard, court, lane, or public place in the City. (1960 C., § 310.010; 1994 C., § 8.98.545; Ord. No. 46399, § 1(part) 1953.)

City Counselor Ops.: 9288, 10315

8.98.550 Applicability of part.

This part shall not apply to any motor vehicle used as a sight-seeing car. "Sight-seeing car" means a motor vehicle having a seating capacity in excess of ten persons, and which is used for the purpose of conveying passengers on a sight-seeing tour, as the term is generally understood, and where the basis for charge is time or circuit route traveled by such cars in regular trips; nor shall it apply to motor buses which are defined as having a seating capacity of ten or more persons which is offered for or engaged in conveying passengers, with or without baggage, for hire within the City, without regard to time consumed or distance traveled when the passenger has no control over the route traversed and when the charge for carriage is made on the basis of carrying passengers from one designated place to another designated place along a definite route. (1994 C., § 8.98.550; Ord. No. 46399, § 1(part), 1953.)

8.98.555 License—Required—Application—Certificate of convenience and necessity.

No person shall engage in the business of operating any service car upon the streets of the City without first obtaining a license so to do. The license shall be issued by the License Collector but shall not be issued until the applicant therefor shall have obtained a certificate of convenience and necessity from the Board of Public Service to operate the aggregate number of service cars for which he seeks to obtain a license. The application for the license shall bear the endorsement of the Secretary of the Board of Public Service, reciting that the applicant has a certificate of convenience and necessity to operate as service cars the cars therein referred to, and has filed the policy of liability insurance required by this part and it shall be accompanied by a certificate of inspection from the Director of Streets and sewers, indicating that each of the cars is suitable to be used, and also by the license fee provided for in this part. (1960 C., § 311.010; 1994 C., § 8.98.555; Ord. No. 46399, § 2, 1953.)

8.98.560 License—Number—Plate.

All licenses for service cars shall be in the name of the holder of a certificate of convenience and necessity,

and the License Collector shall assign a distinctive number to each service car and shall issue a metal plate with the number thereon. The plate shall be securely fastened to the vehicle to which it has been issued and where it can be readily seen. The license shall bear the number assigned and shall show that the vehicle is a service car and that the license is issued subject to suspension or revocation should the Board of Public Service suspend or revoke the certificate of convenience and necessity of the licensee. In the event of the loss, mutilation or destruction of the license or plate, the licensee may obtain from the License Collector a duplicate upon filing an affidavit showing that the license or plate has been lost, mutilated or destroyed, and paying a fee of one dollar therefor. (1960 C., § 311.090; 1994 C., § 8.98.560; Ord. No. 46399, § 12, 1953.)

8.98.565 License—Counterfeit—Transfer.

No plate or license shall be used which has not been duly issued by the License Collector for the particular vehicle on which the plate or license is to be used, nor shall anyone use or permit to be used any false or counterfeit plate or license; provided, however, that when any vehicle for which a plate or license has been issued shall be bona fide and permanently withdrawn from service and replaced by another vehicle, the plate or license may, with the approval of the Secretary of the Board of Public Service, be transferred from the abandoned vehicle to the replacing vehicle upon application therefor to the License Collector and upon the payment of a fee of one dollar. (1960 C., §§ 311.100, 311.110; 1994 C., § 8.98.565; Ord. No. 46399, § 13, 1953.)

8.98.570 License—Tax—Limited.

The license tax required shall be a tax on the business of conveying passengers over and upon the streets in the City by means of service cars and nothing in this part shall be so construed as to exempt the owner, or owners, from paying to the City the tax imposed by the City in licensing motor vehicles or automobiles to be operated on its streets, or the tax which the City levies on motor vehicles or automobiles as personal property. Nor shall anything herein be so construed as to exempt the owner or driver of a motor vehicle from the qualifications or from any driver's license which the City, or the state may require of persons who operate motor vehicles. (1960 C., § 311.120; 1994 C., § 8.98.570; Ord. No. 46399, § 14, 1953.)

8.98.575 License—Tax—Amount.

Before an owner or operator shall receive a license from the License Collector, the owner or operator shall pay the License Collector the sum of thirty dollars as an annual license tax for each service car to be operated by the owner or operator. The license tax shall be due and payable on the first day of July in each year and shall expire one year thereafter. If the application for license to operate the service car is made during the period beginning on the first day of December and including the last day of April in any year only one-half of the license fee shall be charged and collected; if the application is made during the period beginning on the first day of April and ending on the last day of June of any year, only one-fourth of the license fee shall be charged and collected. (1960 C., § 311.130; 1994 C., § 8.98.575; Ord. No. 48912, § 1, 1958; Ord. No. 46399, § 25, 1953.)

8.98.580 Certificate of convenience and necessity—Application—Contents.

The application for a certificate of convenience and necessity shall be addressed to the Board of Public Service, in writing, verified by the affidavit of the applicant, or if the applicant be a corporation, partnership or association of persons of any kind, by its duly authorized officer or agent, and shall state the following facts:

The full name and address of the applicant; if a partnership, the name and address of all partners; if a corporation or association of persons, the names and addresses of all the officers and directors thereof, the names and addresses of the owner or owners of the vehicles proposed to be operated; and in case any service car belongs to a person other than the applicant a copy of the contract setting out in detail all operating and fiscal agreements between the applicant and the owner pursuant to which he proposes to operate the service car, shall be filed with the application; what, if any, previous experience the applicant has had, or if the applicant be a partnership, the partners therein have had, or if the applicant be a corporation or other association of persons, the officers and directors thereof have had in the service car business; the color scheme proposed to be used; the number of service cars the applicant desires to operate; the capacity of each vehicle according to the manufacturer's rating, which must not be less than four in the tonneau thereof; the type of motor car to be used, horsepower, name of manufac-

turer, state license, the length of time the vehicle has been in use, and insurance proposed to be carried, the amount of the same, and the company issuing the policy. The application shall be accompanied by a verified detailed statement of the assets and liabilities of the applicant. (1960 C., § 312.010; 1994 C., § 8.98.580; Ord. No. 46399, § 3, 1953.)

8.98.585 Certificate of convenience and necessity—Application—Hearing.

Upon the filing of the application, the Board of Public Service shall conduct a hearing thereon to determine the public convenience and necessity as set forth in this part. Notice of the hearing shall be given to the owner of the vehicle, or vehicles, and all persons interested, at least three days before the date set for the hearing. The notice shall be given to the applicant by delivering a copy to him or mailing a copy to his address as stated in the application, and a notice to all other persons interested shall be by publication in the paper doing the City's publishing. (1960 C., § 312.020; 1994 C., § 8.98.585; Ord. No. 46399, § 4, 1953.)

8.98.590 Certificate of convenience and necessity—Application—Routes.

Application for a certificate of convenience and necessity for the operation of a service car shall describe the route over which it is proposed to operate and in addition to the matters which it is authorized by Section 8.98.600 to consider, the Board of Public Service is authorized and empowered to consider and take cognizance of the traffic conditions prevailing on these routes, in determining whether a certificate of convenience and necessity should be granted. The Board of Public Service is authorized and empowered to define and establish congested traffic areas in which service cars shall not be permitted to operate. (1960 C., § 312.130; 1994 C., § 8.98.590; Ord. No. 46399, § 21, 1953.)

8.98.595 Certificate of convenience and necessity—Application—Schedules.

Application for a certificate of convenience and necessity for the operation of service cars shall contain schedules showing the point of origin and destination of each route on which it is proposed to operate service cars and shall state the time of departure from the point of origin and the time of arrival at the point of destination of each service car it is proposed to operate. (1960 C., § 312.140; 1994 C., § 8.98.595; Ord. No. 46399, § 22, 1953.)

8.98.600 Certificate of convenience and necessity—Determination of issuance.

The Board of Public Service shall have power to issue or refuse to issue any such certificate, as in its opinion, the public welfare, convenience and necessity, may require. In determining whether public convenience and necessity require the licensing of service cars for which application may be made, the Board of Public Service shall take into consideration whether the demands of the public require the proposed or additional service car service within the City; the financial responsibility of the applicant, the number, kind, and type of equipment, the color scheme proposed to be used, the increased traffic congestion and demand for increased parking space upon the streets of the City, which may result, and whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the granting of the license, and the past record of the applicant or others with whom he may now be or heretofore may have been associated in the operation of service cars, and other relevant facts as the Board may deem necessary or advisable. The Board of Public Service may, either when a certificate of convenience and necessity is issued or thereafter, designate the time within which the whole or any number of service cars thereby authorized must be in service. (1960 C., § 312.030; 1994 C., § 8.98.600; Ord. No. 46399, § 5, 1953.)

8.98.605 Certificate of convenience and necessity—Revocation or suspension—Hearing—Time—Copies.

The Board of Public Service shall have power to suspend or revoke any certificate of convenience and necessity for the violation of any provision of this part or for the violation of any lawful rule or regulation made by the Board of Public Service governing the operation of service cars, such suspension, except as elsewhere provided in this part, shall be after a hearing, and such revocation shall be after a hearing. A suspension of the certificate shall be for a definite time not exceeding thirty days and may be set aside at any time; provided, that if the Board of Public Service shall have pending before it an order to show cause why the certificate should not be revoked, the suspension may be further extended. The fact that a certificate was suspended for a given cause shall not be a bar to its revocation on the same ground. Whenever the Board of Public Service shall suspend or revoke the certificate of convenience and necessity of the owner or operator of

service cars, it shall thereafter be unlawful to operate the service cars until the period of the suspension shall have expired or the Board of Public Service shall have otherwise restored the certificate to the owner or operator. A copy of the order of the Board of Public Service suspending or revoking the certificate shall be forwarded to the Chief of Police. If the certificate is revoked, a copy of the order or revocation shall be certified to the License Collector and he shall thereupon revoke all licenses theretofore issued to the holder of the certificate of convenience and necessity, and make an entry thereof in the records of his office. Should the Board of Public Service subsequently set aside its order of revocation or otherwise restore the certificate to the owner or operator, either in whole or in part, a copy of the subsequent order shall be certified to the License Collector, who shall make an entry thereof in the records of his office, and to the Chief of Police. (1960 C., § 312.080; 1994 C., § 8.98.605; Ord. No. 46399, § 17, 1953.)

8.98.610 Certificate of convenience and necessity—Revocation or suspension—Corporations.

Any certificate of convenience and necessity which has been issued to a corporation, may be revoked by the Board of Public Service if the corporation has failed or shall fail to file with the proper officer, any report required by any law of this state within sixty days after the date on which the report is due. (1960 C., § 312.090; 1994 C., § 8.98.610; Ord. No. 46399, § 18, 1953.)

8.98.615 Certificate of convenience and necessity—Revocation or suspension—Board powers.

The fact that the Board of Public Service is authorized to suspend or revoke a certificate of convenience and necessity, or to order the revocation of a license on a specific ground, shall not be a limitation on the power of the Board to order the suspension or revocation on any other ground. (1960 C., § 312.100; 1994 C., § 8.98.615; Ord. No. 46399, § 19, 1953.)

8.98.620 Subpermit number.

The Board of Public Service shall assign to each service car which may be placed in service under a certificate of convenience and necessity a subpermit number, which number shall be affixed one on the rear right-hand window, and one on the rear window of the service car. The number shall be printed on a sticker of a type and size to be determined by the Board of Public Service. (1960 C., § 312.040; 1994 C., § 8.98.620; Ord. No. 46399, § 6, 1953.)

8.98.625 Vested rights.

No vested right shall accrue to the holder of any certificate of convenience and necessity. (1960 C., § 312.150; 1994 C., § 8.98.625; Ord. No. 46399, § 26, 1953.)

8.98.630 Judgments against owners.

In the event of any final judgment against the owner or operator of any service car for injury to or death of any person or damage to property from the negligence of the owner or operator remaining unsatisfied for a period of thirty days, the Board of Public Service, upon complaint of the owner of the judgment, shall revoke the certificate of convenience and necessity theretofore issued to the owner or operator of the service car. (1960 C., § 312.110; 1994 C., § 8.98.630; Ord. No. 46399, § 8, 1953.)

8.98.635 Insurance—Required—Amounts—Endorsement.

Before a license is issued for any service car, the applicant therefor shall file with the Board of Public Service a policy of liability insurance in the sum of five thousand dollars for any one person, and in the sum of ten thousand dollars for any two or more persons who may be injured or killed in one accident at any time by reason of carelessness or negligence in the operation of such service car; and in the sum of two thousand dollars for damage to property which may be sustained by reason of carelessness or negligence in the operation of the service car. The insurance policy shall state the number and description of the service car covered by the policy. The insurance shall be carried in a firm or corporation which has been duly licensed or permitted to do a liability insurance business in the state, and shall be kept and maintained continuously in force and effect so long as the applicant shall be the holder of a certificate of convenience and necessity for the operation of a service car on the streets of the City, and so long as the service car license applied for shall, if issued, remain in force. There shall be attached to all liability insurance policies issued pursuant to the requirements of this part the following endorsement:

"In consideration of the premium stated in the policy to which this endorsement is attached, the company hereby waives a description of the motor vehicles

to be insured hereunder and agrees to pay any final judgment for personal injury, including death, resulting therefrom, or damage to property, caused by any and all motor vehicles operated by _____, the assured, pursuant to the service car license issued by the City of St. Louis, within the limits set forth in the schedule shown hereon, and further agrees that upon its failure to pay any final judgment, the judgment creditor may maintain an action in any court of competent jurisdiction to compel such payment. Nothing contained in the policy or any endorsement thereon, nor the violation of any of the provisions thereof by the assured, shall relieve the company from liability hereunder or from the payment of such judgment. The policy to which this endorsement is attached shall not expire, nor shall cancellation take effect until after ten days' notice in writing by the Company shall have been given to the board of public service of the City of St. Louis at its office in the City Hall, said ten days' notice to commence to run from the date notice is actually received at the office of the Board. Attached to and forming a part of Policy No. _____ issued by _____ Company to _____." (1960 C., §§ 311.020, 311.030, 311.040; 1994 C., § 8.98.635; Ord. No. 46399, § 7(part), 1953.)

8.98.640 Insurance—Filing.

It shall be unlawful for any person to operate or drive, or cause to be operated or driven, any service car along or upon any street in the City unless the policy of insurance required by this part for the service car shall have been filed with the Board of Public Service and maintained in full force and effect. (1960 C., § 311.050; 1994 C., § 8.98.640; Ord. No. 46399, § 7(part), 1953.)

8.98.645 Insurance—Sticker.

Upon satisfactory evidence of compliance in full with all the provisions of this part relative to liability insurance, the Board of Public Service, on the first day of each month, shall issue to the owner or operator of each service car, a windshield sticker showing the month and year for which issued. This sticker shall be applied to the lower right-hand corner of the windshield of the service car for which issued and shall not be removed or transferred during the month for which issued. At no time shall more than one such sticker be displayed on the windshield of any service car. (1960 C., § 311.060; 1994 C., § 8.98.645; Ord. No. 46399, § 7(part), 1953.)

8.98.650 Additional cars.

If the Board of Public Service after a public hearing shall find that public convenience and necessity requires the operation of service cars in addition to those previously authorized under the provisions of this part and shall issue its certificate to that effect, either upon the application of a person already authorized to operate service cars or a new applicant, and assign a sub-permit number to each service car authorized by the certificate, it shall then be the duty of the License Collector to issue to the applicant a license for each additional service car authorized by the certificate of convenience and necessity. Whenever the holder of a certificate of convenience and necessity shall be granted a certificate to operate additional service cars, the Board of Public Service shall make an order amending the original certificate and reciting the number of service cars previously authorized, the date or dates of the authorization, the number authorized by the amendment, and the aggregate number of service cars which the person may operate pursuant to the amended certificate. Before a license shall be issued for any additional service cars, the applicant therefor shall file one policy of liability insurance covering all service cars for which he holds a certificate of convenience and necessity, or the policy of liability insurance theretofore filed by him shall bear an endorsement to the effect that it covers the additional service cars. The policy of insurance shall then state the total number and description of service cars covered by the policy. If any policy of insurance is permitted to lapse, expire or be cancelled for any reason whatsoever, and the holder of the certificate fails to replace the same immediately with another policy of insurance fully complying with the provisions of this part, the certificate of convenience and necessity shall be suspended by the Board of Public Service without notice or hearing, and the Board may, after a hearing upon notice, revoke the certificate. The Board of Public Service may reinstate any suspended certificate of convenience and necessity after suspension upon compliance in full with all the provisions of this part within a reasonable time. (1960 C., §§ 311.070, 311.080; 1994 C., § 8.98.650; Ord. No. 46399, § 9, 1953.)

8.98.655 Discontinuance of service.

No person to whom a certificate of convenience and necessity to operate service cars has been granted may discontinue permanently any or all of them without first filing with the Board of Public Service a veri-

fied statement of the number of the vehicles he desires to discontinue operating and the reason therefor, and obtaining the approval of the Board to discontinue the operation, as set forth in the statement or in an amendment thereof. Upon approval, the Board of Public Service shall amend the certificate of the person and make a corresponding reduction in the number of service cars he may operate. The withdrawal of any vehicle from operation for the purpose of conditioning, overhauling or repairing, or for any other interfering circumstance which in the judgment of the Board is beyond the control of the certificate holder, shall not be considered discontinuing operation within the meaning of this section. Upon what, in the judgment of the Board of Public Service, constitutes substantially a complete abandonment of service car service for a period of ninety consecutive days, it shall revoke the certificate of convenience and necessity of the owner or operator unless it shall appear to the satisfaction of the Board that the abandonment is due to causes beyond the control of the owner or operator. (1960 C., §§ 312.050, 312.060; 1994 C., § 8.98.655; Ord. No. 46399, § 10, 1953.)

8.98.660 Transfer of rights.

No holder of a certificate of convenience and necessity may sell, assign, or lease, or otherwise transfer the rights and privileges granted thereunder to any other person without the approval of the Board of Public Service made by an order duly entered in its records. (1960 C., § 312.070; 1994 C., § 8.98.660; Ord. No. 46399, § 11, 1953.)

8.98.665 Inspections.

The Director of Streets shall maintain constant vigilance over all service cars, and through his deputies and inspectors shall inspect all such vehicles to ascertain that they are in a thoroughly safe condition for the transportation of passengers, clean, fit, of good appearance, and well-painted. The inspection shall be made annually before the issuance of any license therefor, and shall be made thereafter from time to time, or on the complaint of any person, as often as may be necessary to ascertain that the service cars are kept in a condition of continued fitness for public use. The Director of Streets may forbid the use of any vehicle by the owner thereof, found to be unfit or unsuited for public patronage. Reports in writing of all inspections shall promptly be made and kept on file in the Department of Streets. Whenever any vehicle shall have been found to be unfit or unsuited for public patronage and its use forbidden by the Director of Streets, it shall be unlawful for any person to further use the vehicle as a service car. The Director of Streets shall issue to each owner an inspection card which shall identify the service car inspected and the card shall be kept in the possession of the operator of the service car while the service car is being operated in the business of carrying passengers. For the annual inspection, the Director of Streets shall receive a fee of five dollars for each service car inspected, which fee shall be paid by the owner or operator thereof at the time of making the inspection; but nothing herein contained shall be so construed as authorizing the Director of Streets to charge or collect more than one inspection fee per year on the same service car. The Director of Streets is authorized and empowered to establish reasonable rules and regulations in connection with the inspection and examination mentioned herein and the issuing of the certificate of inspection. (1960 C., § 310.020; 1994 C., § 8.98.665; Ord. No. 46399, § 15, 1953.)

City Counselor Ops.: 10315

8.98.670 Rules and regulations.

The Board of Public Service is authorized and empowered to determine and prescribe just, reasonable, safe, adequate and proper regulations, practices, equipment and service to be in force, to be observed, and to be used in the operation of service cars, and to so fix and prescribe the same by order entered in its records, and to be served on each service car owner or operator by mailing a copy thereof to the owner or operator, or in such other manner as the Board by its rules may prescribe; and thereafter it shall be the duty of every service car owner or operator to observe and obey the requirements of any order and do everything necessary or proper in order to secure compliance with and observance of every order by all of its officers, agents and employees. The Board of Public Service is also authorized to prescribe its procedure and that of its officers in the administration of this chapter, the form of all applications and reports required in this part, and regulations as may be reasonably necessary to the uniform and orderly manner in which the privileges conferred by certificates of convenience and necessity shall be exercised by the holders thereof. (1960 C., § 312.120; 1994 C., § 8.98.670; Ord. No. 46399, § 20, 1953.)

City Counselor Ops.: 8555

8.98.675 Stops and stands.

The Board of Public Service is authorized and empowered to establish designated stops and stands for service cars, and to issue permits therefor. (1960 C., § 310.030; 1994 C., § 8.98.675; Ord. No. 46399, § 23, 1953.)

City Counselor Ops.: 10315

8.98.680 Taking on and discharging passengers.

For the purpose of taking on and discharging passengers, a service car shall stop at the far corner of all intersections, and while so stopped shall keep as close to the right-hand curb as practicable, and shall take on and discharge passengers as quickly as possible, so as not to unreasonably interfere with traffic. (1960 C., § 310.040; 1994 C., § 8.98.680; Ord. No. 46399, § 24, 1953.)

City Counselor Ops.: 10315

8.98.685 Penalty for violation.

Any person who violates or fails to comply with, or who permits or causes any person in his or its employ to violate or fail to comply with any of the provisions of this part, shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined not less than twenty-five dollars nor more than five hundred dollars. (1994 C., § 8.98.685; Ord. No. 46399, § 27(part), 1953.)

PART X. HOTEL AND MOTEL COURTESY TRANSPORTATION VEHICLES

8.98.690 License required.

It shall be unlawful for any hotel, motel or other commercial hostelry to provide transportation in any vehicle owned, leased, or otherwise operated in whole, or in part, by such establishment, to its guests, patrons, or customers without first making an application to the Board of Public Service and obtaining a license authorizing the providing of such courtesy transportation. Courtesy transportation permitted by such a license may only be furnished to registered overnight guests between the premises of such establishment and the airport, train or bus station, which is the place of arrival or departure of such persons, as a courtesy and without the payment of a fee or charge. (1994 C., § 8.98.690; Ord. No. 58795, § 10(part), 1983.)

8.98.695 Compliance with inspections and operator's license conditions applicable to taxicabs.

Applicants for licensing under this section shall be subject to compliance with the same inspections and conditions applicable to taxicabs as provided under Sections 8.98.155, 8.98.160, 8.98.161, 8.98.167, and 8.98.347 through 8.98.397. (1994 C., § 8.98.695; Ord. No. 58795, § 10(part), 1983.)

8.98.700 Liability insurance required.

No vehicle shall be licensed under this section unless a policy of liability insurance as required by Sections 8.98.170, 8.98.171, 8.98.172 and 8.98.173 shall be filed with the Board of Public Service. (1994 C., § 8.98.700; Ord. No. 58795, § 10(part), 1983.)

8.98.705 Annual license fees.

Hotels, motels or other hostelries operating vehicles under the authority of this section shall pay to the License Collector an annual license fee of $100.00 per car being so operated. (1994 C., § 8.98.705; Ord. No. 58795, § 10(part), 1983.)

Chapter 8.100

THEATERS, SHOWS AND OTHER PUBLIC AMUSEMENTS

McQuillin:

24.198 *et seq.* Public amusements, recreations and resorts

26.150 *et seq.* Licensing exhibitions, shows, amusements, etc.

Sections:

Part I. General Provisions

8.100.010 Generally.

Part II. Shows, Exhibitions and Roundabouts

8.100.020 Definitions.
8.100.030 License—Required.
8.100.040 License—Fee—Circuses.
8.100.050 License—Fee—Transient tent show.
8.100.060 License—Fee—Roundabout.
8.100.080 License—Charitable purposes.
8.100.090 License—Permit required.
8.100.100 License—Transfer.
8.100.110 Permit—Conditions for granting.
8.100.120 Designated areas—When use required.
8.100.130 Designated areas—Procedures.
8.100.140 Designated areas—Character.
8.100.150 Designated areas—Public hearing.
8.100.160 Designated areas—Filing.

8.100.170 Designated areas—Records.
8.100.180 Designated areas—Amendments and modifications.
8.100.190 Contents of permits and licenses.
8.100.210 Revocation of license—Notice—Refund.
8.100.220 Revocation of license—Show to cease.

Part III. Theaters

8.100.230 Defined.
8.100.250 Fees—Exemptions.
8.100.260 Firearms in theaters.
8.100.270 Age of picture machine operator.
8.100.280 Rules and regulations for operation of picture machines.
8.100.310 Other taxes.
8.100.320 Penalty for failure to pay tax.

Part IV. Theatrical Employment Agencies

8.100.330 Definitions.
8.100.340 License—Required.
8.100.360 License—Application.
8.100.370 Bond.
8.100.380 Part to be posted.

Part V. Golf Courses

8.100.390 Golf course operated for gain defined.
8.100.400 Permit—Required.
8.100.410 Permit—Application—Inspection.
8.100.420 Permit—Issuance.
8.100.430 Hours of operation and maintenance.
8.100.440 Rules and regulations.
8.100.450 Revocation of permits.

Part VI. Athletic and Sporting Events

8.100.460 Bowling alleys.
8.100.470 Exhibitions—License—Required.
8.100.480 Exhibitions—License—Fee.
8.100.490 Exhibitions—License—Application—Surety.
8.100.500 Exhibitions—Gross receipts tax.
8.100.510 Boxing and wrestling matches—License—Fee.
8.100.520 Boxing and wrestling matches—License—Application.
8.100.530 Boxing and wrestling matches—License—Prerequisites—Bond.
8.100.540 Boxing and wrestling matches—Gross receipts tax.
8.100.550 Boxing and wrestling matches—Deposit may be required.
8.100.560 Boxing and wrestling matches—Comptroller to audit accounts.
8.100.570 Boxing and wrestling matches—Permit required.
8.100.580 Boxing and wrestling matches—Free passes.

PART I. GENERAL PROVISIONS

8.100.010 Generally.

Licenses granted under this chapter shall continue in force for twelve months, except as otherwise provided.

No license of any kind shall be issued for a shorter period than that specified in each instance in this chapter, except in such cases as upon full statement of the facts appear to the License Collector worthy of charitable consideration, and that the applicants are truly unable to pay the license fee for the full period stated. In such cases the License Collector, with the approval or upon the recommendation of the Mayor, is authorized to issue licenses for shorter periods, not less than one month, at pro rata rates. (1948 C., Ch. 67, § 1; 1960 C., Ch. 727; 1994 C., § 8.100.010.)

PART II. SHOWS, EXHIBITIONS AND ROUNDABOUTS

McQuillin:

316.010 et seq. Shows, circuses and amusement buildings

8.100.020 Definitions.

When used in this part, the following words shall have the following meanings:

A. "Menagerie" means an exhibition of wild animals for which an admission fee is charged.

B. "Musical entertainment" means any public exhibition in which music is a feature, but not within the definition of a concert, for which admission fee is charged.

C. "Side show" means an entertainment connected with a circus or menagerie and carried on under

separate canvas or in a separate apartment. (1948 C., Ch. 67, § 5; 1960 C., § 726.010; 1994 C., § 8.100.020.)

8.100.030 License—Required.

Every person desiring to conduct any show, exhibition or the amusement known as roundabout or flying horses shall be required to obtain a license from the License Collector. (1948 C., Ch. 67, § 6; 1960 C., § 726.020; 1994 C., § 8.100.030.)

8.100.040 License—Fee—Circuses.

The license fee for each circus, circus and menagerie, or menageries in which such entertainment is to be given, which has a seating capacity or area sufficient to accommodate more than five thousand persons, the license fee shall be two hundred dollars per day; more than three thousand persons, but not more than five thousand persons, one hundred twenty-five dollars per day; more than fifteen hundred persons, but not more than three thousand persons, seventy-five dollars per day; more than seven hundred fifty persons, but not more than fifteen hundred persons, fifty dollars per day; more than four hundred persons, but not more than seven hundred fifty persons, twenty dollars per day; not more than four hundred persons, fifteen dollars per day. (1948 C., Ch. 67, § 7; 1960 C. 726.050; 1994 C., § 8.100.040; Ord. No. 44798, § 1(6), 1949.)

City Counselor Ops.: 9606

8.100.050 License—Fee—Transient tent show.

The license fee for each transient exhibition or show, except a circus, given in a tent or other temporary enclosure, ten dollars per day for each enclosure for entrance to which an admission fee is charged. (1948 C., Ch. 67, § 9; 1960 C., § 726.040; 1994 C., § 8.100.050; Ord. No. 44798, § 1(7), 1949.)

City Counselor Ops.: 9606

8.100.060 License—Fee—Roundabout.

The license fee for the amusement known as roundabout or flying horses, forty dollars for a period not exceeding six months. (1948 C., Ch. 67, § 8; 1960 C., § 726.030; 1994 C., § 8.100.060; Ord. No. 44798, § 1(9), 1949.)

City Counselor Ops.: 9606

8.100.080 License—Charitable purposes.

Any circus, circus and menagerie, or menageries conducted wholly for religious, educational, benevolent or charitable purposes and not for private gain, and the licensee or any agent, officer or employee thereof receives no compensation or profit of any kind therefrom, shall not be required to pay the license provided for in this part. (1960 C., § 726.060; 1994 C., § 8.100.080; Ord. No. 44938, § 2, 1949.)

8.100.090 License—Permit required.

Before any license for any show, exhibition or the amusement known as roundabout or flying horses, shall be granted to any person by the License Collector, the person applying therefor must obtain a written permit from the Board of Public Service and present the same to the License Collector. (1948 C., Ch. 67, § 10; 1960 C., § 726.080(part); 1994 C., § 8.100.090.)

8.100.100 License—Transfer.

The License Collector is hereby authorized and directed to transfer any license issued by him for the operation of a roundabout or flying horses when an application is filed in writing for such transfer by the person to whom the license was originally issued, signed by a majority of the residents in the City block to which the transfer is to be made. (1948 C., Ch. 67, § 11; 1960 C., § 726.070; 1994 C., § 8.100.100.)

8.100.110 Permit—Conditions for granting.

No permit shall be granted by the Board of Public Service to any person under the provisions of this part unless the person shall satisfy the Board that no immoral, unlawful or improper business is intended to be carried on at the show or exhibition for which the permit is requested. (1948 C., Ch. 67, § 12; 1960 C., § 726.080(part); 1994 C., § 8.100.110.)

8.100.120 Designated areas—When use required.

In addition to the requirement provided in Section 8.100.110, that before the Board of Public Service can grant its approval for a license for an operator of amusement riding devices, it shall be satisfied that no immoral, unlawful or improper business is to be carried on at the premises for which the approval is requested, it shall also be required that before the Board of Public Service can grant approval for the issuance of a license and approval permit to locate and assemble the devices on a lot for a period of time to exceed ninety-six hours and to operate the amusement riding devices for a total period of time to exceed twenty-six hours, the period to be measured by continuous or sporadic operation time, the Board of Public Service must determine that the applicant intends to operate the amusement riding devices in a geographic area that has been previously designated by the Board of Public Service as an accept-

able area for the location and operation of amusement riding devices for the periods of time set out in this section. (1960 C., § 726.085(part); 1994 C., § 8.100.120; Ord. No. 56570, § 1(part), 1973.)

8.100.130 Designated areas—Procedures.

The procedure to be followed by the Board of Public Service for designating the aforesaid geographic districts shall be as follows:

The Board of Public Service shall, within one hundred twenty days of July 12, 1973, cause to be prepared an amusement riding device geographic district bill designating areas where the amusement riding devices which are to be located and assembled on a lot for a period of time exceeding ninety-six hours and which are to be operated for a total period of time in excess of twenty-six hours, the period to be measured by continuous or sporadic operation time, shall be allowed, for consideration by the Board of Aldermen. The area designation recommendations by the Board of Public Service shall be based on certain objective standards as set out in this part. The bill shall include, but not be limited to:

A. A general location map and description of the boundaries of the districts which description shall describe the streets which bound the district or if the boundary lines are not along streets the description shall be by metes and bounds, or other legal and readily identifiable designation;

B. A statement documenting the area's suitability for the location of amusement riding devices for a period in excess of forty-eight hours, as defined above, with regard to the standards set out in this part. (1960 C., § 726.085(1); 1994 C., § 8.100.130; Ord. No. 56570, § 1(part), 1973.)

8.100.140 Designated areas—Character.

The Board of Public Service in recommending areas for designation and the Board of Aldermen in designating recommended areas shall make the following factual determinations inserting recommended or designated areas:

A. That the area is characterized by intense commercial or industrial activity or is reasonably proximate to such areas; or

B. That the area is such that amusement riding devices be operated within it for a period in excess of forty-eight hours would not constitute a source of public annoyance, or intrude in any substantial way upon adjacent residential or commercial uses. (1960 C., § 726.085(2); 1994 C., § 8.100.140; Ord. No. 56570, § 1(part), 1973.)

8.100.150 Designated areas—Public hearing.

After a bill designating the districts is introduced in the Board of Aldermen and assigned to the board's zoning and city planning committee, the bill shall not be voted on by the Board until a public hearing on same is held by the committee. At least fifteen days prior to the public hearing the committee shall require the Clerk of the Board of Aldermen to cause to be published in two daily newspapers of general circulation in the City, preferably in one each of the morning and evening dailies, a notice of the pendency of the general advertising district bill. The notice shall contain relevant facts and information pertaining to the bill, including a clear description of the location of the area and the date when property owners affected thereby, or others interested therein, may appear before the committee and be heard. (1960 C., § 726.085(3 part); 1994 C., § 8.100.150; Ord. No. 56570, § 1(part), 1973.)

8.100.160 Designated areas—Filing.

On passage of any bill designating such areas by the Board of Aldermen and approval by the Mayor, the Clerk of the Board shall forthwith file a copy of same with the office of the Building Commissioner, the President of the Board of Public Service and the Recorder of Deeds. (1960 C., § 726.085(3 part); 1994 C., § 8.100.160; Ord. No. 56570, § 1(part), 1973.)

8.100.170 Designated areas—Records.

The City Plan Commission shall maintain with the Building Commissioner's officer a current record of designated districts. (1960 C., § 726.085(3 part); 1994 C., § 8.100.170; Ord. No. 56570, § 1(part), 1973.)

Editor's Note:

Ordinance 56708 created the Community Development Agency and assumed the duties of the City Plan Commission.

8.100.180 Designated areas—Amendments and modifications.

The original bill designating the districts submitted by the Board of Public Service to the Board of Aldermen is subject to any change or modification made to the bill by the Board of Aldermen. After the bill's final passage and approval by the Mayor it may be changed or modified at any time and in any way whatsoever by the Board of Aldermen upon recommendation of the

Board of Public Service or by the Board of Aldermen at its own volition but any changes will only be made by an amending ordinance written in conformance with this part and after a public hearing held in conformance with this part. The Board of Public Service shall review the districts in effect on a periodic basis, or at least every two years, to determine if the area designations contained in the bill are still in conformance with the standards set out in this part. If the Board of Public Service shall decide that changes or modifications should be made to the existing districts after periodic review, it shall present its changes or modification to the Board of Aldermen through an amending ordinance and the ordinance shall be subject to a public hearing held in conformance with this part. (1960 C., § 726.085(4); 1994 C., § 8.100.180; Ord. No. 56570, § 1(part), 1973.)

8.100.190 Contents of permits and licenses.

Permits and the license granted thereon shall distinctly describe and specify the character and nature of the show or exhibition for which such permit and license is granted, and must designate the place at which the show or exhibition shall be carried on. (1948 C., Ch. 67, § 13; 1960 C., § 726.090; 1994 C., § 8.100.190.)

8.100.210 Revocation of license—Notice—Refund.

All licenses granted under this part may be revoked by the Board of Public Service by its giving three days' notice to the person licensed. The licensee shall thereupon be entitled to have an amount of money proportionate to the unexpired time of his license refunded to him and the Comptroller is authorized to draw his warrant upon the treasurer for the amount so due. (1948 C., Ch. 67, § 15; 1960 C., § 726.110; 1994 C., § 8.100.210.)

8.100.220 Revocation of license—Show to cease.

Any person holding a license, who shall carry on his show, exhibition or amusement known as roundabout or flying horses more than three days after the notice of the license being revoked has been served upon him, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 67, § 16; 1994 C., § 8.100.220.)

PART III. THEATERS

McQuillin:

24.199 et seq. Theaters, movies and shows

8.100.230 Defined.

For the purposes of this part, a "theater" shall be deemed to be any building or place employed for dramatics, operatic, musical, theatrical or moving picture performances or exhibitions. (1948 C., Ch. 67, § 17; 1960 C., § 716.010; 1994 C., § 8.100.230.)

City Counselor Ops.: 9112, 9888

McQuillin:

26.151 Licensing theatres and shows

8.100.250 Fees—Exemptions.

No license shall be required when exhibitions, shows or amusements are conducted wholly for religious, educational, benevolent or charitable purposes, and not for private gain, and licensee, or any agent, officer or employee thereof, receives no compensation or profit of any kind therefrom. (1948 C., Ch. 67, § 19; 1960 C., § 716.030; 1994 C., § 8.100.250.)

8.100.260 Firearms in theaters.

It shall be unlawful to discharge, use or employ any firearms loaded with powder and ball in any exhibition, theater or place of amusement in the City. The violation of this section shall constitute a misdemeanor.

The proprietor, conductor, manager, agent or any other person having charge or direction of the exhibition, theater or place of amusement shall be held responsible and liable for any violation of this section happening at the places under his charge to the same extent and effect as if he had personally done the things herein prohibited. (1948 C., Ch. 67, § 20; 1960 C., § 716.040; 1994 C., § 8.100.260.)

8.100.270 Age of picture machine operator.

No person under twenty-one years of age shall operate, or be permitted to operate, any picture machine within the City. (1948 C., Ch. 67, § 21; 1960 C., § 716.050; 1994 C., § 8.100.270.)

8.100.280 Rules and regulations for operation of picture machines.

The following rules and regulations have been approved by the Director and are made a part of the general rules and regulations and are to be printed on cards furnished to each projection room, to read as follows:

A. While projecting pictures, an operator shall devote his entire time and attention to operating the machine or machines in his custody or control.

B. Within twenty-four hours after the occurrence of a fire or accident within the booth, the operator and

manager of the exhibition shall separately send a written notice of the fire or accident to the Department of Public Safety.

C. Projectors shall be kept clean, in good mechanical condition, and free from waste oil.

D. Magazine doors on projectors shall be kept closed while machines are in operation.

E. No change or alteration in any of the projection equipment or any part thereof shall be made until the Department of Public Safety has been notified and approval obtained.

F. No films shall be exposed except those in the process of being transferred to or from the projector or of being rewound.

G. Each reel of film shall be kept in a separate metal case or in approved metal cases with separate compartments made without solder and with tightly-fitted covers.

H. Not more than two thousand feet of film shall be wound on any one-fifteenth inch reel, equipped with a hub of not less than four and one-quarter inches in diameter. The overloading of reels is strictly prohibited.

I. Entrance doors to the booth shall be kept closed but not locked while the auditorium is occupied by the public.

J. The booth shall be kept clean and free from combustible material at all times. A metal can or receptacle made without solder and with a self-closing cover shall be provided as a receptacle for waste film and other materials.

K. The exhaust fans shall be kept running and the intake duct open while the projectors are in operation.

L. All stereoopticons, spotlights and effect machine openings shall be kept closed when not in use.

M. No person shall be allowed within the booth except the owner, manager, business manager of the local union, operators or apprentices as authorized by the local union and agreeable to the management.

N. No change or alteration in the booth or enclosure shall be made until the Department of Public Safety has been notified and approval obtained.

O. An inspection certificate from the Department of Public Safety of the booth or enclosure and these rules and regulations shall be conspicuously posted therein under glass.

P. Smoking is strictly prohibited within the projection booth or enclosure at any time.

Q. No person or persons shall be permitted within the booth or enclosure in the state of intoxication. (1948 C., Ch. 67, § 22; 1960 C., § 716.060; 1994 C., § 8.100.280; Ord. No. 47403, § 1, 1955.)

8.100.310 Other taxes.

There shall be due to the License Collector from every person coming within the provisions of this part every duty now due to the License Collector with respect to other license taxes by statute or ordinance or due to the collector of the revenue with respect to the assessment, levy, issue, transfer or payment of taxes, license taxes or license fees or the revoking of licenses, and the License Collector shall have the same powers and duties with respect to the license tax provided by this part as he has with respect to any and all other license taxes now imposed by law. (1948 C., Ch. 67, § 25; 1960 C., § 717.030; 1994 C., § 8.100.310.)

8.100.320 Penalty for failure to pay tax.

Any person who, under this part is required to pay a license tax, or whose license has expired and has been notified by the License Collector, shall, if the license tax is not paid within ten days after the notice has been given, pay a penalty of fifty dollars, and for every ten days or fractional part thereof thereafter an additional fifty dollars shall be added until compliance with this part, and such penalty shall be collected with the license fee by the License Collector and both be paid into the City Treasury. (1948 C., Ch. 67, § 26; 1960 C., § 717.040; 1994 C., § 8.100.320.)

PART IV. THEATRICAL EMPLOYMENT AGENCIES

8.100.330 Definitions.

"Theatrical employment exchange," when used in this part, shall mean the business of conducting an exchange, bureau, office, or any other place for the purpose of procuring, offering, promising or attempting to provide engagements for circus, vaudeville, theatrical and other entertainments, exhibitions or performances, or of giving information as to where the engagements may be procured or provided, whether the business is conducted in a building, on the street, or elsewhere.

"Theatrical engagement," when used in this part, shall mean any engagement or employment of a person as an actor, performer or entertainer in a circus, vaudeville, theatrical and other entertainment, exhibition or

performance. (1948 C., Ch. 67, § 44; 1960 C., § 719.010; 1994 C., § 8.100.330.)

8.100.340 License—Required.

Any person desiring to conduct a theatrical employment exchange shall be required to obtain a license from the License Collector before engaging in such an enterprise. (1948 C., Ch. 67, § 45; 1960 C., § 719.020; 1994 C., § 8.100.340.)

8.100.360 License—Application.

The application for a license shall be in writing and shall state where the proposed theatrical employment exchange will be located. This application shall be endorsed on the back by the Police Commissioners to the effect that, in their opinion, the applicant is a person of good moral character. (1948 C., Ch. 67, § 47; 1960 C., § 719.040; 1994 C., § 8.100.360.)

8.100.370 Bond.

The License Collector shall require a bond with each application for a license. This bond shall be in the sum of five hundred dollars and payable to the City, as obligee, executed by the applicant and one or more sureties to be approved by the License Collector and conditioned that the obligors shall not violate any of the duties, terms, conditions, provisions or requirements of this part. The License Collector is authorized to commence and prosecute actions on any such bond in the City for any violation of the conditions of this bond. (1948 C., Ch. 67, § 48; 1960 C., §§ 719.050, 719.060; 1994 C., § 8.100.370.)

8.100.380 Part to be posted.

Every person holding a license under the provisions of this part shall keep a copy of this part conspicuously posted in the office thereby licensed. (1948 C., Ch. 67, § 49; 1960 C., § 719.070; 1994 C., § 8.100.380.)

PART V. GOLF COURSES

8.100.390 Golf course operated for gain defined.

A "golf course operated for gain," as used in this part, is hereby defined to be any privately-owned course wherein a charge is made for the use of the course, or a charge is made for the privilege of practicing any part of the game of golf, either by direct charge, or by a club membership plan, or by any other indirect means whereby a charge is made. (1948 C., Ch. 67, § 50; 1960 C., § 710.010; 1994 C., § 8.100.390.)

McQuillin:

24.205 Golf and other games

26.152 Licensing athletic places

8.100.400 Permit—Required.

No person shall operate a golf course for gain within the City without first obtaining a permit from the Board of Public Service. (1948 C., Ch. 67, § 51; 1960 C., § 720.020; 1994 C., § 8.100.400.)

8.100.410 Permit—Application—Inspection.

Any person desiring to obtain a permit to operate a golf course for gain shall make application therefor to the Director of Public Safety, and shall pay to the Director of Public Safety an inspection fee of forty dollars. Upon the filing of the application and the payment of the inspection fee, it shall be the duty of the Director of Public Safety to cause an inspection to be made of the premises upon which it is proposed to locate the golf course, and to cause a certificate of inspection to be issued to the applicant. This certificate shall state the location of the proposed golf course, the fact that it has been inspected by the Department of Public Safety, and a recommendation to the Board of Public Service that the permit applied for shall be issued or refused. If the Director of Public Safety is satisfied that the provisions of this part and all other ordinances of the City have been complied with, he shall, in the certificate of inspection, recommend to the Board of Public Service the issuance of the permit for which the application was made. (1948 C., Ch. 67, § 52; 1960 C., § 720.030; 1994 C., § 8.100.410.)

8.100.420 Permit—Issuance.

It shall be the duty of the Board of Public Service to issue a permit to those applicants who have been issued certificates of inspection by the Director of Public Safety, as provided by this part, which recommend to the Board the issuance of a permit. No permit shall be issued for a golf course operated for gain except at a location within the commercial, industrial or unrestricted districts, as these districts are defined by the zoning and planning provisions of this Code and the accompanying maps thereto, or as these districts shall hereafter be defined by ordinance. All permits issued under this part shall expire on the thirty-first day of December of the year in which they are issued. (1948 C., Ch. 67, § 53; 1960 C., §§ 720.040, 720.050; 1994 C., § 8.100.420.)

8.100.430 Hours of operation and maintenance.

No golf course shall be operated in the City between the hours of one-thirty a.m. and seven a.m., and no operator or owner of any golf course, nor shall his agents, servants or employees work or tamp the course between the hours of one-thirty a.m. and seven a.m. (1948 C., Ch. 67, § 54(part); 1960 C., § 720.060; 1994 C., § 8.100.430.)

8.100.440 Rules and regulations.

The Director of Public Safety is authorized to make other reasonable rules and regulations for the inspections and operation of golf courses operated for gain. (1948 C., Ch. 67, § 54(part); 1960 C., § 720.070; 1994 C., § 8.100.440.)

8.100.450 Revocation of permits.

The Board of Public Service is authorized to revoke any permit issued pursuant to this part for violating the provisions of any ordinance of the City, relating to golf courses operated for gain, or for violating any lawful rules and regulations relating thereto, upon the recommendation of the Director of Public Safety after a hearing. (1948 C., Ch. 67, § 55; 1960 C., § 720.080; 1994 C., § 8.100.450.)

PART VI. ATHLETIC AND SPORTING EVENTS

McQuillin:

24.204 Athletic and sporting activities, events, places

8.100.460 Bowling alleys.

No person shall operate bowling alleys in the City without first having paid to the License Collector the sum of twenty-five dollars for each alley, in each such bowling alley, payable on and after the first day of October of each year. (1948 C., Ch. 67, § 56; 1994 C., § 8.100.460; Ord. No. 48879, § 1, 1958.)

McQuillin:

26.154 Licensing bowling alleys

8.100.470 Exhibitions—License—Required.

No person shall conduct an exhibition, to which an admission fee is charged, of automobile racing, motorcycle racing, baseball, football, basketball, ice skating, ice hockey, soccer, softball, tennis, roller skating, wild west shows, or horse or stock shows in the City without a license. No license shall be required when such exhibitions are conducted wholly for religious, educational, benevolent or charitable purposes, and not for private gain, and the licensee, or any agent, officer or employee thereof, receives no compensation or profit of any kind therefrom. (1948 C., Ch. 67, § 73; 1960 C., §§ 722.010, 722.020; 1994 C., § 8.100.470; Ord. No. 50071, § 1, 1960.)

8.100.480 Exhibitions—License—Fee.

There is levied upon every person conducting any of the exhibitions specified in Section 8.100.470 an annual license tax of five dollars, payable on the first day of July of each year. (1948 C., Ch. 67, § 74; 1960 C., § 722.030; 1994 C., § 8.100.480.)

8.100.490 Exhibitions—License—Application—Surety.

Application for the license shall be made to the License Collector. The applicant shall file with the License Collector either a bond to the City in the sum of one thousand dollars, with a surety company, approved by the Comptroller as surety, or, if the applicant elects, a cash deposit of five hundred dollars for the use and benefit of the City, conditioned on the payment of the license fee set out in Section 8.100.500 to the License Collector, within the time specified. (1948 C., Ch. 67, § 75; 1960 C., § 722.040; 1994 C., § 8.100.490.)

8.100.500 Exhibitions—Gross receipts tax.

There is levied upon every licensee under the provisions of Sections 8.100.470—8.100.500 an additional license tax equal to five percent of the gross receipts of the business of conducting or operating each exhibition specified in Section 8.100.470 held in the City. This license tax shall be paid by licensee to the License Collector within forty-eight hours after each exhibition. The accounts and records of licensee shall be checked and audited by the Comptroller, or his authorized representative, prior to the payment of the license fee, to determine the correctness of the amount of the license fee to be paid on the exhibition. Nothing herein shall be construed as a waiver of the right of the City to collect any license tax accrued under any other ordinance, or to prosecute for any violation thereof. (1948 C., Ch. 67, § 76; 1960 C., § 722.050; 1994 C., § 8.100.500.)

8.100.510 Boxing and wrestling matches—License—Fee.

There shall be annually levied and collected a license tax upon all organizations conducting boxing or sparring exhibitions and wrestling exhibitions in the sum of ten dollars, payable on the first day of July of each year. (1948 C., Ch. 67, § 57; 1960 C., § 721.010; 1994 C., § 8.100.510.)

RSMo:

RSMo 317.001 et seq. (2016) Boxing and wrestling

McQuillin:

24.206 Boxing and wrestling matches

26.152 Licensing athletic contests

8.100.520 Boxing and wrestling matches—License—Application.

Every application for a license required by Sections 8.100.510—8.100.580 shall be made in writing to the License Collector on blank forms furnished to the applicant by the License Collector. (1948 C., Ch. 67, § 62; 1960 C., § 721.060; 1994 C., § 8.100.520.)

8.100.530 Boxing and wrestling matches—License—Prerequisites—Bond.

No license shall be granted to any applicant without the approval of the City Athletic Commission endorsed thereon. Before any application is so endorsed, the Commission shall be satisfied, after diligent inquiry, that the applicant is law abiding and will conduct the exhibitions in a lawful manner.

The applicant shall execute and file with the Comptroller a bond in the sum of two thousand five hundred dollars. This bond shall be approved by the Comptroller and conditioned for the faithful performance by the applicant of the provisions of Sections 8.100.510—8.100.580 and the rules and regulations of the City Athletic Commission. Upon the filing and approval of this bond, the Comptroller shall issue a certificate of the filing and approval which shall be filed by the applicant in the office of the License Collector with his application for license. No license shall be issued until this certificate is filed. (1948 C., Ch. 67, § 63; 1960 C., § 721.070; 1994 C., § 8.100.530.)

8.100.540 Boxing and wrestling matches—Gross receipts tax.

There is levied upon every licensee under Sections 8.100.510—8.100.580 an additional license tax equal to five percent of the gross receipts of the business of conducting or operating each boxing, sparring or wrestling exhibition held in the City. This license tax shall be paid by the licensee to the License Collector within forty-eight hours after each exhibition. No gross receipts tax shall be levied upon any boxing, sparring or wrestling exhibition when the exhibitions are conducted wholly for religious, educational, benevolent or charitable purposes and not for private gain, and the licensee, any agent, officer or employee thereof receives no compensation or profit of any kind therefrom. (1948 C., Ch. 67, § 59; 1960 C., § 721.030; 1994 C., § 8.100.540.)

8.100.550 Boxing and wrestling matches—Deposit may be required.

The City Athletic Commission may require a deposit from the organization sponsoring any boxing, sparring or wrestling exhibition to pay the estimated amount of the gross receipts tax before the permit for the exhibition is issued. (1948 C., Ch. 67, § 60; 1960 C., § 721.040; 1994 C., § 8.100.550.)

8.100.560 Boxing and wrestling matches—Comptroller to audit accounts.

The accounts and records of the organization controlling the exhibitions shall be checked and audited by the Comptroller, or his authorized representative, prior to the payment of the gross receipts tax to determine the correctness of the amount of the license tax to be paid on the exhibitions. (1948 C., Ch. 67, § 61; 1960 C., § 721.050; 1994 C., § 8.100.560.)

8.100.570 Boxing and wrestling matches—Permit required.

Any bona fide patriotic, benevolent, fraternal or religious organization which has been in existence and has held meetings at regular intervals during the year preceding the granting of the license provided for in Sections 8.100.510—8.100.580 desiring to promote boxing, sparring or wrestling exhibitions, shall apply to and receive a permit for the exhibitions from the City Athletic Commission before holding the event. This permit shall set forth the date and the place where the exhibition is to be held. (1948 C., Ch. 67, § 58; 1960 C., § 721.020; 1994 C., § 8.100.570.)

8.100.580 Boxing and wrestling matches—Free passes.

All free passes to attend any boxing, sparring or wrestling exhibition in the City shall be numbered and stamped with the facsimile signature of the Chairman and Secretary of the City Athletic Commission. The total number of free passes to be issued for any such contest in the City shall not exceed two percent of the seating capacity of the place of assembly in which the exhibition shall be held. The City Athletic Commission, its officers, agents and inspectors, shall have authority to exclude from attendance at any exhibition all persons except those who have paid for admission and those having duly authorized free passes. (1948 C., Ch. 67, § 64; 1960 C., § 721.080; 1994 C., § 8.100.580.)

Chapter 8.102

TICKET BROKERS

Sections:

8.102.010 **License required.**

8.102.020 **License—Place of business—Expiration.**

8.102.030 **Charge limited.**

8.102.035 **Resale a higher price.**

8.102.040 **Owner.**

8.102.050 **Railroad ticket broker or dealer defined.**

8.102.060 **Railroad or steamboat broker—License—Required.**

8.102.080 **Railroad or steamboat broker—License—Revocation.**

8.102.090 **Railroad or steamboat broker—Tickets must be issued by existing company.**

8.102.100 **Railroad or steamboat broker—Sale of nontransferable mileage, excursion or commutation tickets.**

8.102.110 **Railroad or steamboat broker—Schedule.**

8.102.120 **Railroad or steamboat broker—Refunds.**

8.102.130 **Railroad or steamboat broker—Bond.**

8.102.140 **Railroad or steamboat broker—Sale of nontransferable railroad tickets.**

8.102.010 License required.

A. No person shall sell or offer for sale any ticket, card or other token evidencing the right of admission of any theatrical performance, circus, concert, exhibition or other place of amusement, or shall open or conduct an office, agency or other place, by whatsoever name known, at which such ticket, card or other token is sold or offered for sale, unless a license shall have been issued to such person by the License Collector upon the payment of a license fee.

B. The provisions of Subsection A of this section shall not apply to any person, persons, association, or corporation who resells any tickets to athletic and sporting events, theatrical and musical performances, circuses, shows, exhibitions, and other places of amusement at a price equal to or less than the price being charged at the regular ticket office or selling place of such performance or event. (1948 C., Ch. 68, § 1; 1960 C., § 693.010; 1994 C., § 8.102.010; Ord. No. 63918, § 1, 1996.)

8.102.020 License—Place of business—Expiration.

Every license granted under the provisions of Section 8.102.010 shall designate the place at which the ticket, card or token shall be sold, and a separate license shall be required for each place where tickets, cards or tokens are sold. The license shall expire on the first day of May next ensuing the granting thereof. (1948 C., Ch. 68, § 2; 1960 C., § 693.020; 1994 C., § 8.102.020.)

8.102.030 Charge limited.

A licensee under this chapter, or any officer, agent or employee thereof, shall not directly or indirectly exact, accept or receive for any ticket, card or other token of admission any greater amount than fifty cents in excess of the sum of the regular or established price or charge therefor, plus the amount of any tax imposed by the government of the United States upon such ticket, card or other token. (1948 C., Ch. 68, § 3; 1960 C., § 693.030; 1994 C., § 8.102.030.)

8.102.035 Resale a higher price.

A. The resale of any tickets to athletic and sporting events, theatrical and musical performances, circuses, shows, exhibitions, and other places of amusement by any person, persons, associations, or corporations at a price higher than is being charged at the regular ticket office or selling place of such performance or event shall be prohibited.

B. Penalty.

1. Any person found guilty of violating Subsection A of this section shall be fined an amount of not less than $250.00 nor more than $500.00.

2. For any subsequent conviction of Subsection A of this section a fine of not less than $500.00 shall be required.

3. The judge may, in lieu of fine, impose no less than 40 hours community service for persons convicted of violating Subsection A of this section. (1994 C., § 8.102.035; Ord. No. 63918, § 2, 1996.)

8.102.040 Owner.

This chapter shall not be deemed to require a license for the tickets, cards or tokens, hereinabovementioned by the person owning the theatre, circus or other place of amusement, or by the authorized employee or agent of such person; provided, that such

sales are made at the regular and established price of admission. (1948 C., Ch. 68, § 4; 1960 C., § 693.040; 1994 C., § 8.102.040.)

8.102.050 Railroad ticket broker or dealer defined.

A "railroad ticket broker or dealer" means one who buys and sells or otherwise deals in railroad, railway or steamboat passenger tickets which may be lawfully sold by others than the duly authorized agents of the railroad or steamboat line over which such tickets purport to entitle the lawful owner to ride. (1948 C., Ch. 68, § 6; 1960 C., § 695.010; 1994 C., § 8.102.050.)

8.102.060 Railroad or steamboat broker—License—Required.

No person shall exercise within the City the business of broker or dealer in railway, railroad or steamboat passenger tickets without a license therefor as hereinafter provided. (1948 C., Ch. 68, § 7; 1960 C., § 695.020; 1994 C., § 8.102.060.)

8.102.080 Railroad or steamboat broker—License—Revocation.

The Mayor shall have power and authority for any good cause shown to revoke any license issued under Sections 8.102.060—8.102.140. The Mayor shall revoke any such license for cause for a violation of any of the terms and conditions of Sections 8.102.060—8.102.140 or the failure on the part of any broker to perform any of the acts required by Sections 8.102.060—8.102.140 to be performed by him. Upon revocation the Mayor shall certify the same to the License Collector; provided, however, that before any license is revoked by the Mayor the licensee under the license shall have a reasonable opportunity to be heard by the Mayor in defense of any charge of violation of Sections 8.102.060—8.102.140 which may be preferred before the Mayor. Each license issued by virtue of Sections 8.102.060—8.102.140 shall express on its face that it is received and held subject to revocation by the Mayor. No person whose license has been revoked shall be entitled to another license within one year after revocation, and the License Collector is prohibited from issuing any license to any person whose license has been revoked within one year from revocation. (1948 C., Ch. 68, § 14; 1960 C., § 695.090; 1994 C., § 8.102.080.)

8.102.090 Railroad or steamboat broker—Tickets must be issued by existing company.

No railroad ticket broker or dealer, or person authorized to do the business of a railway ticket broker or dealer, under a license issued pursuant to Sections 8.102.060—8.102.140, shall buy, sell or deal in any railroad, railway or steamboat passenger tickets except as have been issued by some existing railroad or steamboat company, corporation, association or person owning or operating the same. (1948 C., Ch. 68, § 9; 1960 C., § 695.040; 1994 C., § 8.102.090.)

8.102.100 Railroad or steamboat broker—Sale of nontransferable mileage, excursion or commutation tickets.

No railroad ticket broker or dealer shall buy, sell or otherwise deal in or solicit the purchase or sale of any railroad, railway or steamboat passenger ticket which is by its terms plainly expressed on its face, a mileage, excursion or commutation ticket, where it appears upon the ticket that the same was issued and sold below the regular schedule rate under contract with the original purchaser, entered upon the ticket, and signed by the original purchaser, that the ticket is nontransferable and void in the hands of any other person than the original purchaser thereof. (1948 C., Ch. 68, § 10; 1960 C., § 695.050; 1994 C., § 8.102.100.)

8.102.110 Railroad or steamboat broker—Schedule.

Every railroad ticket broker or dealer shall furnish to the buyer of any ticket sold by the broker or dealer a schedule signed by the name of the broker or dealer, describing the form, number and destination of the ticket and the name of the company that issued the ticket. (1948 C., Ch. 68, § 11; 1960 C., § 695.060; 1994 C., § 8.102.110.)

8.102.120 Railroad or steamboat broker—Refunds.

Every broker within the meaning of Sections 8.102.060—8.102.140 shall immediately refund to the purchaser or lawful agent of the purchaser of any ticket the money paid to the broker for any ticket which did not entitle the person purchasing the same from the broker to use the same for passage on the railroad or steamboat for which the ticket was sold. (1948 C., Ch. 68, § 12; 1960 C., § 695.070; 1994 C., § 8.102.120.)

8.102.130 Railroad or steamboat broker—Bond.

No license shall be granted under Sections 8.102.060—8.102.140 until the person applying therefor shall have filed with the License Collector, a bond, with two good and sufficient securities to be approved by him, in the sum of one thousand dollars, condi-

tioned for the faithful observance of all the terms and provisions of Sections 8.102.060—8.102.140. (1948 C., Ch. 68, § 13; 1960 C., § 695.080; 1994 C., § 8.102.130.)

8.102.140 Railroad or steamboat broker—Sale of nontransferable railroad tickets.

It shall be unlawful for any person to engage in the business of buying or selling the unused portions of nontransferable railroad tickets whose use is restricted to the original purchasers thereof by the railroad company issuing them, or to act as vendor or broker of partially used nontransferable railroad tickets or to solicit personally or by sign or by advertisement or in any other manner to aid in the sale or purchase of partially used nontransferable railroad tickets within the limits of the City. (1948 C., Ch. 68, § 15; 1960 C., § 695. 100; 1994 C., § 8.102.140.)

Chapter 8.104

TOWEL SUPPLY COMPANIES

Sections:

8.104.010 License—Required.

8.104.010 License—Required.

All persons engaged in the business of supplying towels in the City shall pay to the License Collector an annual license tax, payable on November first of each year. (1948 C., Ch. 13, § 85(part); 1994 C., § 8.104.010.)

Chapter 8.106

UNDERTAKERS

RSMo:

RSMo Ch. 333 (2016) Embalmers and funeral and directors

Sections:

8.106.010 License—Required.
8.106.030 License—Gross receipt statement.
8.106.040 License—Permanent place of business.
8.106.050 License—Separate for each place of business.
8.106.060 Place of conducting funeral.
8.106.070 Equipment required.
8.106.080 Surrender of body.
8.106.090 Obtaining possession of body—Authority.
8.106.100 Obtaining possession of body—Commissions or rewards.

8.106.010 License—Required.

No person shall engage in or carry on the business of undertaker in the City, take charge of, supervise or manage any funeral in the City for pay, without first having paid to the License Collector the license tax described in Section 8.106.020. (1948 C., Ch. 10, § 24; 1960 C., § 627.010; 1994 C., § 8.106.010.)

McQuillin:

26.138 Undertakers and burial of the dead

8.106.030 License—Gross receipt statement.

Each applicant for a license shall make a statement to the License Collector on or before the first day of July of each year of the amount of his gross receipts from the business in the City during the preceding year. (1948 C., Ch. 10, § 25(part); 1960 C., § 627.030(part); 1994 C., § 8.106.030; Ord. No. 48914, § 1(part), 1958.)

City Counselor Ops.: 8339

8.106.040 License—Permanent place of business.

Licensed embalmers shall be eligible for licensing as undertakers without further qualification upon payment of the fees requisite thereto. No other person, firm, partnership, corporation or company shall hereafter be eligible for license as an undertaker unless the person, firm, partnership, corporation or company shall have a permanent place or places under his or its direction and control at which place or places such business is conducted, the location of each place to be set forth in the application for license under this chapter. (1960 C., § 627.040(part); 1994 C., § 8.106.040; Ord. No. 52256, § 1(part), 1963.)

8.106.050 License—Separate for each place of business.

Each undertaker desiring to operate, engage in or carry on the business of an undertaker shall secure a separate license for each location in which to carry on such business. (1960 C., § 627.040(part); 1994 C., § 8.106.050; Ord. No. 52256, § 1(part), 1963.)

8.106.060 Place of conducting funeral.

No undertaker shall conduct a funeral from any place other than the licensed premises except from the private home of the deceased person or a church. (1960 C., § 627.040(part); 1994 C., § 8.106.060; Ord. No. 52256, § 1(part), 1963.)

8.106.070 Equipment required.

Each location shall at all times contain equipment and fixtures specially designed for and used in undertaking, including ordinary furnishings but exclusive of any motor vehicles, of the assessed personal property value of at least one thousand dollars before any undertaking license shall be granted. (1960 C., § 627.050; 1994 C., § 8.106.070; Ord. No. 52256, § 1(part), 1963.)

8.106.080 Surrender of body.

No undertaker shall refuse to surrender a dead human body upon request by the next of kin, legal representative or other person lawfully entitled to the custody and control of the body. (1960 C., § 627.060; 1994 C., § 8.106.080; Ord. No. 52256, § 1(part), 1963.)

8.106.090 Obtaining possession of body—Authority.

No undertaker shall obtain possession of or embalm a dead human body without express authority to do so from the next of kin, legal representative, or other person lawfully entitled to the custody and control of the body. (1960 C., § 627.070; 1994 C., § 8.106.090; Ord. No. 52256, § 1(part), 1963.)

8.106.100 Obtaining possession of body—Commissions or rewards.

No undertaker directly or indirectly, shall pay or offer to pay any money or other thing of value, himself or by his agents or employees, to any person nor offer to pay a commission or other reward, emolument or thing of value whatsoever, himself or by agent or employee, for the purpose of obtaining a dead body for embalming, for a funeral or funeral service, or for burial, cremation or preparation for shipment of the body to any other place. (1960 C., § 627.080; 1994 C., § 8.106.100; Ord. No. 52256, § 1(part), 1963.)

Chapter 8.108

VAULT CLEANERS

Sections:

8.108.010 License—Required.
8.108.020 License—Fee—Terms.
8.108.030 Bond.
8.108.040 Manner of cleaning vaults.

8.108.010 License—Required.

No person shall hereafter do business as a vault or privy cleaner without having first obtained a license therefor. (1948 C., Ch. 53, § 12; 1960 C., § 502.120(part); 1994 C., § 8.108.010.)

8.108.020 License—Fee—Terms.

Such license shall be issued by the License Collector only on the payment of one hundred dollars and upon the filing of the bond with security provided in this chapter and after obtaining a permit from the Board of Public Service to carry on the business of vault or privy cleaner and when issued shall authorize the person therein designated to carry on the business of vault and privy cleaner for the term of one year from the date of the license in accordance with this Code or any ordinances of the City and the regulations made from time to time by the Health Commissioner or other proper authority. (1948 C., Ch. 53, § 13; 1960 C., § 502.120(part); 1994 C., § 8.108.020.)

8.108.030 Bond.

Before receiving the license, the applicant shall enter into and file with the City Register a good and sufficient bond in the sum of one thousand dollars, with security to be approved by the Comptroller, conditioned for the due observance of all ordinances and regulations by the proper authorities as may be enacted or in force in reference to the cleaning of vaults or privies at any time during the continuance of the license and for the payment of damages caused by the nonobservance of this Code or any ordinance or regulation now existing or which may hereafter be enacted. (1948 C., Ch. 53, § 14; 1960 C., § 502.130; 1994 C., § 8.108.030.)

8.108.040 Manner of cleaning vaults.

The cleaning of all vaults or privies shall be done in such manner and time as is or may be prescribed by this Code or any ordinance or regulation by the Health Commissioner, who for that purpose is vested with full power to make the necessary rules, and who is charged with seeing that this work of cleaning is performed without creating a nuisance and in as inodorous a manner and as free from foul odors and gases as possible. (1948 C., Ch. 53, § 15; 1960 C., § 502.080; 1994 C., § 8.108.040.)

Chapter 8.108A

VENDORS

Prior ordinance history: Ords. 64569 and 64712

Sections:

8.108A.010 Definitions.

8.108A.020 Vending prohibited—Exceptions.
8.108A.030 Vending districts designated.
8.108A.040 Applicability.

Part I. Vendors License

8.108A.050 Vending business—Permitted—License required.
8.108A.060 Vendor's license—Application—Contents.
8.108A.070 Issuance of license—Contents—Exhibition.
8.108A.080 Identification certificate—Application—Contents.
8.108A.090 Corporate applicant qualifications.
8.108A.100 Applicability of Health Code—Inspection.
8.108A.110 Health inspections and analysis.

Part II. Sidewalk and Vehicle Vendors

8.108A.120 Sidewalk and vehicle vendor's license—Application.
8.108A.130 Sidewalk or vehicle vendor's license—Term.
8.108A.140 Additional permit requirements.
8.108A.150 Rules and regulations.
8.108A.160 License transferal prohibited.
8.108A.170 Licensed vendor's vehicles.

Part III. Festival Vendors

8.108A.180 Festival vendor license—Application.
8.108A.190 Exemptions.
8.108A.200 Festival vendor's license—Term.
8.108A.210 Festival vendor's license—Contents.
8.108A.220 Registration in advance.
8.108A.230 Additional license and permit requirements.
8.108A.235 Sampling prohibited within festival areas.

Part IV. Itinerant Vendors

8.108A.240 Itinerant vendor license—Application.
8.108A.250 Itinerant vendor's license—Term.
8.108A.260 License transferal prohibited.
8.108A.270 Temporary association with local dealer.
8.108A.280 Applicability of part.
8.108A.290 Limitations on applicability.
8.108A.300 Rules and regulations for Downtown Vending District.
8.108A.310 Rules and regulations for City Parks Vending Districts.
8.108A.315 Reserved.

Part V. General Provisions

8.108A.320 Applicability—Soulard Market vendors—Contracted to concessionaires.
8.108A.330 Distribution of written or printed matter.
8.108A.340 Applicability—Sellers of farm produce or products or seller's employees.
8.108A.350 Violation of chapter—Confiscation and release of goods.
8.108A.360 Penalty.
8.108A.370 Revocation of license.

8.108A.010 Definitions.

"City Park" means any area maintained by the Director of Parks, Recreation and Forestry including any sidewalk immediately adjacent to such area but not extending past the curb line of such sidewalk.

"Coupon" means any ticket, certificate, note, voucher, or other instrument issued by a manufacturer or merchant that may be redeemed for a financial discount, additional goods or services, or rebate when purchasing specific goods or services.

"Festival vendor" means any person who sells or offers for sale any goods, wares, merchandise, flowers, horticultural products, services, food or beverages from a booth, stall, stand, table, wagon, pushcart, handcart or other vehicle, or from a pack, basket or similar container, or hand held display at a parade, fair or festival for which the City has issued a permit.

"Itinerant vendor" means any person who engages in a temporary or transient business in the City, selling goods, wares, merchandise, flowers, horticultural products, services, food or beverages, and who for the purpose of carrying on such business, hires, leases or occupies any building or enclosed structure, or any portion thereof, for the exhibition or sale of goods, wares or merchandise.

"LRA owned property" means any property owed in fee simple by the Land Reutilization Authority of the City of St. Louis.

"Popup" vendor" means any person who engages in a temporary or transient business in the City, selling goods, wares, merchandise, flowers, horticultural products, services, food or beverages, and who for the purpose of carrying on such business, hires, leases or occupies any lot, or any portion thereof, for the exhibition or sale of goods, wares or merchandise.

"Roadway" means that portion of the street or alley, including the median if any, between the regularly established curbs, or that portion ordinarily used for vehicular traffic. Specifically including in the definitions, the Kingshighway Memorial Boulevard Median located from Dr. Martin Luther King Drive to West Florissant Boulevard

"Sampling" means to knowingly distribute or furnish without charge, or cause to be furnished or distributed without charge any goods, wares, phones, merchandise, flowers, horticultural products, food or beverages from a table, wagon, pushcart, handcart or other nonmotorized vehicle, or from a pack, basket or similar container, or hand held display.

"Sidewalk" means that portion of a street, intended for the use of pedestrians, between the curb line or lateral boundary of a roadway and the adjacent property line.

"Sidewalk Vendor" means any person who sells or offers for sale on any public sidewalk or public right of way, other than a roadway or roadway median, any goods, wares, merchandise, flowers, horticultural products, services, food or beverages from a booth, stall, stand, table, wagon, pushcart, handcart or other nonmotorized vehicle, or from a pack, basket or similar container, or hand held display.

"Soulard market area" means the area bounded by Lafayette Street on the south, Seventh Street on the east, Marion Street on the north and Interstate highway 55 on the west.

"Vehicle Vendor" means any person who sells or offers for sale on any public roadway any goods, wares, merchandise, flowers, horticultural products, services, food or beverages from a wagon, pushcart, handcart or other vehicle.

"Vend or vending" means to sell or offer for sale any goods, wares, merchandise, flowers, horticultural products, services, food or beverages, or offer for free or permit the offering for free of any goods, wares, merchandise, flowers, horticulture products, services, food or beverage, regardless of value, or any coupon, regardless of value, as an inducement to purchase other goods or services, or to draw customers to a store, business, website or other online platform in order to stimulate sales of goods or services. (1994 C., § 8.108A.010; Ord. No. 71212, § 1, 7-24-2020; Ord. No. 71127, § 1, 5-4-2020; Ord. No. 66655, § 1, 2005; Ord. No. 65061, § 2, 2000.)

8.108A.020 Vending prohibited—Exceptions.

No person shall sell or offer for sale or permit the offering or selling of any goods, wares, merchandise, flowers, horticultural products, services, food or beverages upon any public sidewalk, street, roadway, or roadway median within the City of St. Louis except in those areas designated by ordinance as Vending Districts, or offer for free or permit the offering for free of any goods, wares, merchandise, flowers, horticulture products, services, food or beverage, regardless of value, or any coupon, regardless of value, as an inducement to purchase other goods or services, or to draw customers to a store, business, website or other online platform in order to stimulate sales of goods or services upon any public sidewalk, street, roadway, or roadway median within the City of St. Louis except in those areas designated by ordinance as Vending Districts.

No person shall sample, sell or offer for sale or permit the offering or selling of any goods, wares, merchandise, flowers, horticultural products, services, food or beverages upon any LRA owned property within the Kingsway East, Kingsway West, Penrose, and Mark Twain Neighborhoods.

No person shall sell or offer for sale or permit the offering or selling of any goods, wares, merchandise, flowers, horticultural products, services, food or beverages upon any privately owned lot, within the Kingsway East, Kingsway West, Penrose, and Mark Twain Neighborhoods, in those areas prohibiting vending except for festival vendors. (1994 C., § 8.108A.020; Ord. No. 71212, § 2, 7-24-2020; Ord. No. 71127, § 2, 5-4-2020; Ord. No. 65061, § 3, 2000.)

8.108A.030 Vending districts designated.

The following areas are designated as Vending Districts within the City of St. Louis. Except for those vending businesses located in The Wharf Vending District as regulated by the provisions of Ordinance 61362, every vending business operated within a Vending District shall comply with the rules and regulations adopted in the ordinance codified in this chapter.

A. "Downtown Vending District" shall mean the area bounded by the east side of Fourth Street on the

east, and the center lines of Cole Street on the north, Eighteenth Street on the west and Chouteau Street on the south.

B. "City Park Vending Districts" shall mean any area maintained by the Director of Parks, Recreation and Forestry.

C. "Wharf Vending District" as defined and regulated by Ordinance 61362, June 6, 1989.

D. "Meramec Street Vending District" shall mean the area bounded by the west curb line of South Broadway south from the south curb line of Meramec Street to the southernmost part of the lot numbered 4257 South Broadway; and on Ohio Street from the south curb line of Meramec Street to the north curb line of South Broadway provided such vendors are licensed as provided herein. Licensed vendors in this district may sell agricultural products and flowers only.

E. Reserved.

F. "The Grand Boulevard Vending District" shall mean the area along Grand Boulevard from Natural Bridge Avenue to Interstate Highway 70.

G. Reserved.

H. Reserved.

I. Reserved.

J. "Midtown Neighborhood Vending District" shall mean the area bounded by Chouteau Avenue on the south, Leffingwell Avenue on the east, Vandeventer Avenue on the west, and Delmar Boulevard and Olive Street via North Compton Avenue on the north.

K. "Tiffany Neighborhood Vending District" shall mean the area bounded by Chouteau Avenue on the north, Interstate 44 on the south, Grand Boulevard on the east and 39th Street on the west.

L. "Covenant Blu/Grand Center Neighborhood Vending District" shall mean the area bounded by Dr. Martin L. King Drive to the north, North Compton Avenue to the east, Olive Street to the south, and North Vandeventer Avenue to the west. (1994 C., § 8.108A.030; Ord. No. 69639, § 1, 12-30-2013; Ord. No. 68990, § 1, 10-20-2011; Ord. No. 68603, §§ 1, 2, 3-16-2010; Ord. No. 68588, § 1, 3-16-2010; Ord. No. 68108, § 1, 9-24-2008; Ord. No. 66860, § 1, 2005; Ord. No. 65347; Ord. No. 65061, § 4, 2000.)

8.108A.040 Applicability.

This chapter shall not be construed to forbid merchants occupying with their goods, wares, merchandise, flowers, food or beverages, a limited portion of the sidewalk adjacent to the property occupied by them in conformity with the conditions of a permit obtained from the Department of Streets or the Board of Public Service, or prevent or prohibit the sale or offering for sale any goods, wares, merchandise, flowers, food or beverages:

A. By merchants pursuant to Ordinance 60950, approved on July 18, 1988; or

B. The delivery of any goods, wares, merchandise, flowers, food or beverages to any residence or business within the aforementioned geographical areas; or

C. During any period of time for which a festival, fair or parade permit has been issued by the Street Department or the Board of Public Service for a festival, fair or parade to be conducted within any of the aforementioned areas. (1994 C., § 8.108A.040; Ord. No. 71127, § 4, 5-4-2020; Ord. No. 65061, § 5, 2000.)

PART I. VENDORS LICENSE

8.108A.050 Vending business—Permitted—License required.

No person shall operate a business as a sidewalk vendor, vehicle vendor, itinerant vendor, or festival vendor within Vending District without first having obtained a license according to the provisions of this chapter. No person shall act as an agent or an employee for any person licensed under the provisions of this chapter unless such person has first obtained an identification certificate from the License Collector. No licensee shall permit any other person to act as agent or employee for such licensee unless such person has first obtained an identification certificate from the License Collector. (1994 C., § 8.108A.050; Ord. No. 71127, § 5, 5-4-2020; Ord. No. 65061, § 6, 2000.)

8.108A.060 Vendor's license—Application—Contents.

Application for a license shall be made in writing on a form provided by the License Collector, and signed by the applicant. If the applicant is a corporation, a duly authorized agent shall sign the application. The application shall contain the following information:

A. The full name, residence address and business address of the applicant and any employee of the applicant

B. The business telephone number of the applicant;

C. The type of license sought by the applicant;

D. A general description of the item or items to be sold;

E. A full face photograph of the applicant and a full face photograph of the applicant's employees, if applicable;

F. A written statement of clearance certifying that no current or past earnings and /or property taxes are due and payable to the City;

G. A statement from the Director of Revenue of the State of Missouri certifying that the applicant is not delinquent in the payment of any sales tax if the list of delinquent taxpayers provided to the City by the Director of Revenue indicates a delinquency on the part of such person.

Any such other information as may be required by the License Collector.

Subsequent to the issuance of a license, the licensee shall be required to notify the License Collector within 10 days of any changes in the information made part of the application. (1994 C., § 8.108A.060; Ord. No. 71127, § 6, 5-4-2020; Ord. No. 65061, § 7, 2000.)

8.108A.070 Issuance of license—Contents—Exhibition.

Upon the filing of the completed application, the payment of the proper license fee as prescribed in this chapter, the License Collector shall deliver to the licensee a license.

Every license shall be numbered consecutively, and shall show the name, occupation and place of residence of the licensee and the period for which the license is issued.

Every license shall be color-coded in a manner to be determined by the License Collector.

Every license shall state the Vending District(s) in which the license shall be valid for the licensee to legally operate their vending business and every license shall instruct the licensee that the license is not legal in any other Vending District or Non Vending District.

Each licensee shall carry the license with him and shall exhibit it whenever required by any police officer or other officer authorized under the laws or ordinances to make arrests. (1994 C., § 8.108A.070; Ord. No. 71127, § 7, 5-4-2020; Ord. No. 65061(part), 2000.)

8.108A.080 Identification certificate—Application—Contents.

Application for an employee identification Certificate shall be made in writing on a form provided by the License Collector, and signed by the applicant. The application shall contain the following information:

A. The full name, residence address and business address of the applicant;

B. The name of the applicant's employer;

C. A full face photograph of the applicant;

D. Any such other information as may be required by the License Collector.

The License Collector is authorized to charge a non-refundable application processing fee of $20.00 to be collected at the time of application. Subsequent to the issuance of an identification certificate, the certificate holder shall be required to notify the License Collector within 10 days of any changes in the information made part of the application. Each certificate holder shall carry the certificate with him and shall exhibit it whenever required by any police officer or other officer authorized under the laws or ordinances to make arrests. (1994 C., § 8.108A.080; Ord. No. 71127, § 8, 5-4-2020; Ord. No. 65061, § 8, 2000.)

8.108A.090 Corporate applicant qualifications.

Each corporate applicant for a vending license shall be qualified to do business under the laws of the State of Missouri. (1994 C., § 8.108A.090; Ord. No. 71127, § 9, 5-4-2020; Ord. No. 65061, § 9, 2000.)

8.108A.100 Applicability of Health Code—Inspection.

All licensees and their employees shall be subject to and comply with all applicable requirements and standards for dispensing and purveying food contained in Title Eleven of the Revised Code, as amended, and rules and regulations promulgated thereunder by the Health Commissioner. All food held, offered for sale, sold or given away by licensees shall be subject to and comply with all applicable requirements for such food of the Revised Code and the rules and regulations promulgated thereunder by the Health Commissioner. (1994 C., § 8.108A.100; Ord. No. 71127, § 10, 5-4-2020; Ord. No. 66136, § 1, 2004; Ord. No. 65061, § 10, 2000.)

8.108A.110 Health inspections and analysis.

It shall be the duty of every licensee to permit inspections to be made and, when required, to furnish samples of any foods kept, offered for sale or given away by the licensee as often as may be deemed necessary to determine that the foods are free from adulteration, are not misbranded, and do not contain an excessive number of microorganisms or their toxins. The licensee shall answer all reasonable and proper questions and furnish records of the sampled product. Samples shall be examined or analyzed by or under the direction of the City's Department of Health, and a

record of each such examination or analysis shall be made and kept in its office. (1994 C., § 8.108A.110; Ord. No. 71127, § 11, 5-4-2020; Ord. No. 65061, § 11, 2000.)

PART II. SIDEWALK AND VEHICLE VENDORS

8.108A.120 Sidewalk and vehicle vendor's license—Application.

Every individual who desires a license as a sidewalk or vehicle vendor shall make application therefore in conformity with the provisions of this chapter relating to applications for licenses. The fee for a sidewalk or vehicle vendor's license shall be $200.00 per year. A non-refundable application processing fee of $25.00 shall be collected at the time of application; provided, however, that upon the granting of a license, the amount of the application fee shall be credited to the fee for said license. (1994 C., § 8.108A.120; Ord. No. 71127, § 12, 5-4-2020; Ord. No. 65061, § 12, 2000.)

8.108A.130 Sidewalk or vehicle vendor's license—Term.

Any sidewalk or vehicle vendor's license issued according to the provisions of this chapter shall be valid until December 31 of the year in which this chapter is enacted. Thereafter all licenses shall be valid for one (1) year beginning on January 1 and ending on December 31. Renewal of licenses shall be permitted beginning on December 1.

No license shall be issued under this chapter except for the full license period and the full license fee. (1994 C., § 8.108A.130; Ord. No. 71127, § 13, 5-4-2020; Ord. No. 65061, § 13, 2000.)

8.108A.140 Additional permit requirements.

The license collector shall issue the license to the applicant upon his meeting the following conditions:

A. Present proof of compliance with all requirements deemed necessary by the Department of Health, the Department of Streets, the Department of Public Safety or the Department of Parks, Recreation and Forestry; and

B. Present proof of insurance in the amount of twenty-five thousand dollars/fifty thousand dollars bodily injury coverage and property damage in the amount often thousand dollars with an insurance company of good standing on each vehicle used in the operation of the vending business. (1994 C., § 8.108A.140; Ord. No. 71127, § 14, 5-4-2020; Ord. No. 65061, § 14, 2000.)

8.108A.150 Rules and regulations.

A. The business of sidewalk or vehicle vending shall only be permitted between the hours of 6:00 a.m. and 11:00 p.m.

B. No pushcart or other vehicle related to the operation of a vending business shall be located on any City sidewalk or other public way during non-vending hours, nor shall any such pushcart or other item be parked, stored or left overnight;

C. A licensed vendor may not block the passage of the public through a public area or interfere with access to ramps, curb cuts or other conveniences for individuals with disabilities. If a sufficient crowd gathers to transact business with a licensed vendor such that the passage of the public through a public area is blocked or that access to ramps, curb cuts or other conveniences for individuals with disabilities is blocked a police officer may disperse that portion of the crowd that is blocking the passage of the public.

D. A licensed vendor many not conduct a vending business in a public area so as to obstruct access to private property, except with the prior written consent of the owner or manager of the property.

E. The conduct and behavior of all licensed vendors shall comply in all respects with existing noise ordinances.

F. No licensed vendor shall conduct a vending business within 150 feet from another licensed vendor or an existing business which sells or offers for sale comparable goods or merchandise.

G. No licensed vendor shall conduct a vending business within 300 feet of a fair or festival unless such vendor has first obtained the written permission of the permit holder of the fair or festival and has been issued a festival vendor's license under the provisions of this chapter.

H. Licensed vendors shall keep the sidewalks, street and other spaces adjacent to their vending sites or locations clean and free of paper, peelings and refuse of any kind. All trash or debris accumulating within fifteen (15) feet of any vending stand shall be collected and disposed of by the vendor each day of operation.

I. Persons engaged in food or beverage vending shall affix to their pushcart a receptacle for litter that shall be maintained and emptied regularly and marked as being for litter.

J. Licensed vendors may not put refuse from the operation of their pushcart in or beside any public trash container or in any drain along or in the streets or sidewalks.

K. Licensed vendors may not leave their pushcart unattended at any time.

L. A pushcart shall not be motor powered. Nothing in this paragraph shall prohibit the transportation of a licensed vendor's pushcart to and from the licensed vendor's authorized location by a motor powered vehicle.

M. The Director of Streets shall formulate any additional rules and regulations necessary for the proper administration of this chapter. Rules and regulations shall be maintained in the office of the Director of Streets and shall be available for public inspection during ordinary business hours. (1994 C., § 8.108A.150; Ord. No. 71127, § 15, 5-4-2020; Ord. No. 65061, § 15, 2000.)

8.108A.160 License transferal prohibited.

No transfer of ownership shall be allowed on any license issued hereunder. (1994 C., § 8.108A.160; Ord. No. 71127, § 1, 5-4-2020; Ord. No. 65061, § 16, 2000.)

8.108A.170 Licensed vendor's vehicles.

A. Every wagon, cart or other vehicle used by a licensed vendor in or about his business shall have the name of the owner and his address plainly, distinctly, and legibly painted in letters and figures at least two inches in height in a conspicuous place on the outside of each side of every such wagon, cart or other vehicle, and such name and address shall be kept so painted plainly and distinctly at all times while such wagon, cart or other vehicle is in use during the continuance of the license covering the use of such wagon, cart or other vehicle.

B. No vehicle used for vending, selling or peddling within the City shall interfere with or impede the flow of traffic on any City street. No vending vehicle shall violate any traffic or parking laws, including the prohibition of double parking of the City.

C. Whenever the vehicle is stopped for the purpose of making a sale, it shall be stopped at the right hand curb of the street at the extreme right hand edge of the pavement and shall be legally parked. No sale shall be made from any such vehicle from other than the curb side when said vehicle is legally parked or to any person who is standing in the normally traveled portion of a City street or alley. At such stops the vehicle's motor shall be turned off unless its operation is essential to producing the product sold.

D. No vehicle may be parked or stored in a restricted parking area.

E. Each vending vehicle subject to the provisions of this chapter shall be equipped with:

1. A mechanical and electrical signaling device which while the vehicle is stopped to make sales, will display flashing signals plainly visible from the front and rear, during the day or night, indicating that sales therefrom are being made;

2. A receptacle for the disposal of wrappers, papers, containers and other trash.

F. All vehicles used in the sale of the products described in this chapter must be kept in a clean and sanitary condition at all times, and when containing loads or parts of loads of such products, they must be kept only in sanitary places that meet with the rules and regulations of the City Health Department. (1994 C., § 8.108A.170; Ord. No. 71127, § 17, 5-4-2020; Ord. No. 65061, § 17, 2000.)

PART III. FESTIVAL VENDORS

8.108A.180 Festival vendor license—Application.

Every individual who desires to operate a vending business at a festival, fair or parade shall make application for a festival vendor license in conformity with the provisions of this chapter relating to applications for licenses. The fee for a festival vendor's license shall be $75.00. A non-refundable application processing fee of $25.00 shall be collected at the time of application; provided, however, that upon the granting of a license, the amount of the application fee shall be credited to the fee for said license. The sponsor of the fair, festival or parade and the vendor shall be jointly and severally liable for obtaining a festival vendor's license from the License Collector. (1994 C., § 8.108A.180; Ord. No. 71127, § 18, 5-4-2020; Ord. No. 65061, § 18, 2000.)

8.108A.190 Exemptions.

Any vendor at a fair or festival which is three (3) calendar days or less in duration or any vending business which is operated at any fair, festival or parade solely for the benefit of a not-for-profit organization as defined by Section 501 (c) (3) of the Internal Revenue Code shall be exempt from the payment of a festival vendor license fee. Festival vendors shall not be required to obtain employee identification certificates for individuals who assist the licensee in the operation of a festival vending business. Exempted festival vendors shall be required to comply with all other provisions of this chapter. (1994 C., § 8.108A.190; Ord. No. 71127, § 19, 5-4-2020; Ord. No. 65061, § 19, 2000.)

8.108A.200 Festival vendor's license—Term.

A festival vendor's license shall only be valid for the period of time during which the fair, festival or parade is held. (1994 C., § 8.108A.200; Ord. No. 71127, § 20, 5-4-2020; Ord. No. 65061, § 20, 2000.)

8.108A.210 Festival vendor's license—Contents.

In addition to any other requirement contained in this chapter, the festival vendor's license shall include name and address of sponsor of fair, festival or parade, name and address, social security number and federal identification number of organization or vendor, type of article to be sold, days of vending, and other information deemed necessary by the License Collector. (1994 C., § 8.108A.210; Ord. No. 71127, § 21, 5-4-2020; Ord. No. 65061, § 21, 2000.)

8.108A.220 Registration in advance.

All festival vendors shall be registered at least twenty-one (21) days prior to the fair, festival or parade at which they intend to sell goods or merchandise. The License Collector may waive this provision for good cause shown. (1994 C., § 8.108A.220; Ord. No. 71127, § 22, 5-4-2020; Ord. No. 65061, § 22, 2000.)

8.108A.230 Additional license and permit requirements.

No festival vendor offering any goods, wares, merchandise, food or beverage exclusively at a fair, festival or parade pursuant to the provisions of this chapter, is required to have any additional business or merchants license except for a license or permit required by the excise laws of the City. (1994 C., § 8.108A.230; Ord. No. 71127, § 23, 5-4-2020; Ord. No. 65061, § 23, 2000.)

8.108A.235 Sampling prohibited within festival areas.

No person shall knowingly distribute or furnish without charge, or cause to be furnished or distributed without charge any goods, wares, merchandise, flowers, horticultural products, food or beverages from a table, wagon, pushcart, handcart or other non-motorized vehicle, or from a pack, basket or similar container, or hand held display upon any public sidewalk, street, park, roadway, or roadway median within any area designated by valid City of St. Louis permit as a festival area. (1994 C., § 8.108A.235; Ord. No. 66655, § 2, 2005.)

PART IV. ITINERANT VENDORS

8.108A.240 Itinerant vendor license—Application.

Every individual who desires a license as an itinerant vendor shall make application therefore in conformity with the provisions of this chapter relating to applications for licenses, and shall state the class of license sought. The fee for an itinerant vendor's license shall be $25.00 per day. A non-refundable application processing fee of $25.00 shall be collected at the time of application; provided, however, that upon the granting of a license, the amount of the application fee shall be credited to the fee for said license. (1994 C., § 8.108A.240; Ord. No. 71127, § 24, 5-4-2020; Ord. No. 65061, § 24, 2000.)

8.108A.250 Itinerant vendor's license—Term.

Any itinerant vendor's license issued according to the provisions of this chapter shall only be valid on the day issued.

No itinerant vendor's license shall be issued under this chapter except for the full license period and the full license fee. (1994 C., § 8.108A.250; Ord. No. 71127, § 25, 5-4-2020; Ord. No. 65061, § 25, 2000.)

8.108A.260 License transferal prohibited.

No transfer of ownership shall be allowed on any license issued hereunder. (1994 C., § 8.108A.260; Ord. No. 71127, § 26, 5-4-2020; Ord. No. 65061, § 26, 2000.)

8.108A.270 Temporary association with local dealer.

Any person engaged as an itinerant vendor shall not be relieved from the provisions of this chapter by reason of temporary association with any local dealer, trader, merchant or auctioneer, or by conducting a temporary or transient business in connection with, or as a part of, the business of, or in the name of any local dealer, trader, merchant or auctioneer. (1994 C., § 8.108A.270; Ord. No. 71127, § 27, 5-4-2020; Ord. No. 65061, § 27, 2000.)

8.108A.280 Applicability of part.

The provisions of this chapter shall not apply to sales made to dealers by commercial travelers or selling agents in the usual course of business, or to bona fide sales of goods, wares or merchandise by sample for future delivery. (1994 C., § 8.108A.280; Ord. No. 71127, § 28, 5-4-2020; Ord. No. 65061, § 28, 2000.)

8.108A.290 Limitations on applicability.

The provisions of this chapter shall not apply to any person who hires, leases or occupies any part of a building or enclosed structure, or portion thereof, for the exhibition or sale of goods, wares or merchandise for a period of more than two consecutive days and less

than ten consecutive days on less than three occasions in any calendar year as long as the goods, wares or merchandise are sold inside the building or enclosed structure. (1994 C., § 8.108A.290; Ord. No. 71127, § 29, 5-4-2020; Ord. No. 65061, § 29, 2000.)

8.108A.300 Rules and regulations for Downtown Vending District.

In addition to all other requirements of this chapter the following provisions shall apply to every vending business in the Downtown Vending District. The provisions of this section shall supersede any other provision of Chapter 8.108A of the City Code if such provisions are inconsistent.

A. Every vending business in the Downtown Vending District must operate from a fixed location on a public sidewalk or public right-of-way, other than a roadway except when licensed as a festival vendor under the provisions of this chapter.

B. Vendors must apply for and obtain a permit to operate a vending business in the Downtown Vending District as provided in this section prior to obtaining a vendor's license. Vendor's permits shall be issued by the Director of Streets (the "Streets Director") for locations in the Downtown Vending District which are not within the City Parks Vending District, and by the Director of Parks, Recreation and Forestry (the "Parks Director") for locations in the Downtown Vending District which are within the City Parks Vending District.

C. No person, partnership or corporation shall be issued more than two (2) vendor's permits for locations within the Downtown Vending District, including areas in the Downtown Vending District which are within the City Parks Vending District, at any one time. No vendor's permit may be issued for any location which is within one block of any part of the City Parks Vending District and outside such district.

D. Vendors' permits in the Downtown Vending District shall be approved prior to issuance by the Board of Public Service. No such permit shall be approved unless it has been recommended by the Director of Streets, or in the case of locations within both the Downtown Vending District and the City Parks Vending District, by the Parks Director, who shall certify in their recommendation that prior to such recommendation such Director consulted with the Partnership for Downtown St. Louis concerning the matter and complied with the requirements of Subsection F of this section. This subsection does not apply to permits regulated by Subsections H and I of this section.

E. The minimum annual fee for a vendor's permit shall be $500.00; provided, this fee may be increased by the Board of Public Service, in its discretion, to an amount up to $1,000.00, after request of the Streets Director and the Parks Director, identifying increases in regulatory costs to the City justifying the proposed fee increases. All revenue derived from vendor's permit fees shall be held in the Downtown Vending District Parks Fund established by Ordinance No. 68603.

F. When the Streets Director or the Parks Director determine that a vending permit should be issued for a location within the Downtown Vending District or for a location within part of the City Parks Vending District which is within the Downtown Vending District:

1. Such Director shall establish criteria, as follows:

a. Vending location;

b. Items to be sold, e.g. food, beverages, clothing;

c. Hours of vending;

d. Type of vending structure, e.g. food cart; provided, the criteria shall expressly provide that no vending may be done from shopping carts;

e. Contribution to diversity of products available from vendors, and diversity of appearance of vendors' facilities, within the Downtown Vending District or within the City Parks Vending District within the Downtown Vending District;

2. Such Director shall issue a solicitation for permit applications, which shall:

a. Be published in two newspapers of general circulation in the metropolitan area and on the City's website for two weeks;

b. Identify the vending location;

c. State the criteria;

d. Request permit applications, which shall:

i. Require applicants to indicate whether they will pay the City sums above the minimum fee;

ii. Require appropriate applicant identity information;

iii. Require photographic and other information about the vending structure, e.g. food cart;

iv Contain detailed information about items to be sold and prices and suppliers;

v Require additional information as deemed appropriate; and

e. State the due date for applications.

3. After receipt of permit applications, the Streets Director or the Parks Director, as applicable, shall rank the applications based on completeness, desirability of product, proposed payments to the City, suitability of vending structure for the location, and contribution to diversity of products available from vendors and diversity of appearance of vendors' facilities, within the Downtown Vending District or within part of the City Parks Vending District within the Downtown Vending District;

4. Such Director shall then consult with the Partnership for Downtown St. Louis concerning the matter;

5. Such Director may reject all applications and shall retain records of his or her proceedings.

G. A sidewalk vendor shall be required to operate a vending business a minimum of ninety (90) days per year for a minimum of four (4) hours per day. No pushcart or other item related to the operation of a vending business shall be located on any City sidewalk or other public areas during non-vending hours, nor shall any such pushcart or any other item be parked, stored or left overnight in the Downtown Vending District or in any part of the City Parks Vending District within the Downtown Vending District.

H. Vendor's permits issued pursuant to this section shall be valid for three (3) years beginning on January 1 following approval of an application and ending on the third subsequent December 31, subject to payment in advance of the annual vendor's permit fee by December 31; provided, the Streets Director or the Parks Director as applicable may recommend to the Board of Public Service by December 1 of each year during the term of a permit that the permit be revoked as of the subsequent December 31 for noncompliance with this section or applicable regulations or failure to maintain a vendor's license. Following the expiration or revocation of a license, the applicable director may initiate a new solicitation process, if he or she believes continued vending at the location is in the City's interests.

I. Notwithstanding the provisions of this section, no person shall be permitted to vend on any public sidewalk or within any public right-of-way within the following-described area (also depicted in the diagram attached to Ordinance No. 68603 as Exhibit A) in the Downtown Vending District, which includes the area known as the South Downtown Project Area as defined in Ordinance 65668, unless such person is a designated redeveloper for the South Downtown Project Area or has entered into a valid vending agreement with a designated redeveloper for the South Downtown Project Area and such person has otherwise complied with all requirements of this section and Ordinance 65061:

A tract of land being located in all of Blocks 6465, 6466, 6467, 106, 6509, 1409, 160, 161, 162, 147, and 148 and part of Blocks 188, 425, 417, 418, 419, and 422 of the City of St. Louis, Missouri being more particularly described as follows:

Beginning at the intersection of the Easterly line of former 9th Street vacated by Ordinance No. 9191 and the Southerly line of Walnut Street, thence along the easterly line of former 9th Street and its direct prolongation Southerly to the Northern Line of Gratiot Street, thence along last said Northerly line to the Westerly line of 4th Street, thence along last said Westerly Line to the Southerly line of Walnut Street, thence along last said Southerly line to the Easterly line of former 9th Street, and the Point of Beginning.

J. Notwithstanding the provisions of this section, no person shall be permitted to vend on any public sidewalk or within any public right-of-way within the following-described area (also depicted in the diagram attached to 69096 as Exhibit A) in the Downtown Vending District, unless such person has entered into valid vending agreements with the Convention and Visitors Commission:

The area bounded as follows: Beginning at the intersection of the line created 100 feet West of Ninth Street and 100 feet North of Cole Street, thence East along such 100-foot North line of Cole Street to its intersection with the West right-of-way line of I-70, thence South along such West right-of-way line of I-70 to its intersection with the line created 100 feet South of Washington Avenue, thence West along such 100-foot South line of Washington Avenue, to its intersection with the 100-foot West line of 9th Street, thence North along such 100-foot West line of 9th Street to its point of beginning. (1994 C., § 8.108A.300; Ord. No. 68757, § 1, 10-22-2010; Ord. No. 68603, § 3, 3-16-2010; Ord. No. 66860, § 2, 2005; Ord. No. 65061, § 30, 2000.)

Editor's Note:

Exhibit A, referred to in subsection J, is on file in the Register's office.

8.108A.310 Rules and regulations for City Parks Vending Districts.

A. Except as provided in Chapter 22.20 of the Revised Code, as amended, pertaining to awarding

concession contracts in City parks, no person shall vend or operate a vending business in any City park without first having obtained a license in accordance with the provisions of this chapter and a permit from the Director of Parks, Recreation and Forestry.

B. The Director of Parks, Recreation and Forestry is authorized to establish rules, regulations and fee schedules not inconsistent with the provisions of this chapter necessary for the proper administration of operating a vending business within City Park Vending Districts; Such rules, regulations and fee schedules shall be maintained in the office of the Director and shall be available for public inspection during ordinary business hours. (1994 C., § 8.108A.310; Ord. No. 71127, § 30, 5-4-2020; Ord. No. 68603, § 4, 3-16-2010; Ord. No. 65061, § 31, 2000.)

8.108A.315 Reserved.

Editor's Note:

Ord. No. 68603, § 2, adopted March 16, 2010, repealed § 8.108A.315 which pertained to Rules and regulations for the Civic Center Vending District and derived from Ord. No. 68108, § 2, adopted Sept. 24, 2008.

PART V. GENERAL PROVISIONS

8.108A.320 Applicability—Soulard Market vendors—Contracted to concessionaires.

The provisions of this chapter shall not apply to any person operating a business within the Soulard Market Area under an agreement with the Director of Public Utilities or any person who has entered into a concession contract with the City of St. Louis. (1994 C., § 8.108A.320; Ord. No. 65061, § 32, 2000.)

8.108A.330 Distribution of written or printed matter.

A. The provisions of this chapter shall not be construed as prohibiting the distribution or sale of newspapers, pamphlets, handbills or other written or printed matter sold or distributed for the purpose of disseminating news and information except to expressly prohibit the distribution or sale of newspapers, pamphlets, handbills or other written or printed matter sold or distributed for the purpose of disseminating news and information in the Kingshighway Memorial Boulevard Median that runs the from the southern end at Dr. Martin Luther King Boulevard to the northern at West Florissant Avenue.

B. The Director of Street is hereby directed to post No Vending, No Soliciting Signs in both of the medians of Kingshighway Memorial Boulevard intersecting Natural Bridge. (1994 C., § 8.108A.330; Ord. No. 71127, § 31, 5-4-2020; Ord. No. 65061, § 33, 2000.)

8.108A.340 Applicability—Sellers of farm produce or products or seller's employees.

The provisions of Section 8.108A.050 of this chapter requiring vendors within the City of St. Louis to obtain a license shall not apply to the sale of any farm produce or farm products including but not limited to any horticultural products, fruits, vegetables, garden products, butter, eggs, or poultry by any farmer or producer, or any employee of any farmer or producer, who shall grow or process such farm produce or farm products. (1994 C., § 8.108A.340; Ord. No. 71127, § 32, 5-4-2020; Ord. No. 65061, § 34, 2000.)

8.108A.350 Violation of chapter—Confiscation and release of goods.

A. Any goods, wares, merchandise, flowers, horticultural products, food or beverages sold or offered for sale by a vendor who is charged with a violation of this chapter shall be confiscated by the police department or the health department and held pending the prosecution of such violation.

B. Any goods, wares, merchandise, flowers, horticultural products, services, food or beverages being held pursuant to this section shall only be released upon notification by the warrant officer for municipal violations that such goods, wares, merchandise, flowers, horticultural products, services, food or beverages are no longer necessary for prosecution.

C. If such goods, wares, merchandise, flowers, horticultural products, services, food or beverages are not redeemed by the vendor or the vendor's agent within a reasonable time after the disposition of any summons issued for a violation of this chapter, they may be disposed of in any manner deemed in the best interest of public health and safety. (1994 C., § 8.108A.350; Ord. No. 71127, § 33, 5-4-2020; Ord. No. 65061, § 35, 2000.)

8.108A.360 Penalty.

Any person who is found guilty or enters a plea of guilty to a violation of any provision of this chapter, or who knowingly furnishes false information on any license or permit application required by this chapter, shall be subject to a fine of not less than $100.00 nor

more than $500.00 or to a term of imprisonment of not more than ninety (90) days or both a fine and imprisonment. (1994 C., § 8.108A.360; Ord. No. 71127, § 34, 5-4-2020; Ord. No. 65061, § 36, 2000.)

8.108A.370 Revocation of license.

The License Collector shall revoke any vendor's license issued herein if the licensee is found guilty or enters a plea of guilty to a violation of any provision of this chapter or violates any license regulation promulgation under the authority of this chapter. A licensee shall not be entitled to a refund of the fees paid for any license which is subsequently revoked as provided herein. (1994 C., § 8.108A.370; Ord. No. 71127, § 35, 5-4-2020; Ord. No. 65061, § 37, 2000.)

Chapter 8.109

VENDORS AT FAIRS AND FESTIVALS

Sections:

8.109.010 Registration required.

8.109.020 Certificate of registration—Validity.

8.109.030 Registration contents.

8.109.040 License holder—Waiver of registration fee.

8.109.050 Display of certificate.

8.109.060 Registration in advance.

8.109.070 License and permit requirements.

8.109.010 Registration required.

Any person who sells, offers for sale any goods, wares, merchandise, food or beverages at a fair or festival must register with the License Collector, and the License Collector shall issue a certificate of registration; provided, however, that a vendor at a fair or festival which is two (2) calendar days or less shall be exempt from said registration requirement and from payment of the registration fee as required herein. (1994 C., § 8.109.010; Ord. No. 63514, § 1, 1995; Ord. No. 61398, § 1, 1989.)

8.109.020 Certificate of registration—Validity.

The certificate of registration shall be valid for any fifteen (15) days of a calendar year, and there shall be a thirty-five dollar ($35.00) registration fee. (1994 C., § 8.109.020; Ord. No. 63514, § 2, 1995; Ord. No. 62567, § 1, 1992; Ord. No. 61398, § 2, 1989.)

8.109.030 Registration contents.

The sponsor of the fair or festival and the vendor shall be jointly and severally liable for registering with the License Collector. The registration shall include name and address of sponsor of fair or festival, name and address, Social Security number and federal identification number of organization or vendor, type of article to be sold, days of vending, and other information deemed necessary by the License Collector. (1994 C., § 8.109.030; Ord. No. 61398, § 3, 1989.)

8.109.040 License holder—Waiver of registration fee.

Any person who has a valid license issued by the License Collector for the sale of such items to be sold at

the fair or festival is not required to pay the registration fee, but such person must obtain a certificate of registration. (1994 C., § 8.109.040; Ord. No. 61398, § 4, 1989.)

8.109.050 Display of certificate.

The vendors must conspicuously display the certificate of registration. (1994 C., § 8.109.050; Ord. No. 61398, § 5, 1989.)

8.109.060 Registration in advance.

All vendors shall be registered at least twenty-one (21) days prior to the fair or festival but the License Collector may waive this for good cause shown. (1994 C., § 8.109.060; Ord. No. 61398, § 6, 1989.)

8.109.070 License and permit requirements.

No vendor offering any goods, wares, merchandise, food or beverage exclusively at a fair or festival pursuant to the provisions of this chapter, is required to have any business or merchants license except for a license or permit required by the excise laws of the City. (1994 C., § 8.109.070; Ord. No. 61398, § 7, 1989.)

Chapter 8.110

WRECKERS

City Counselor Ops.: 9936

Sections:

8.110.010 Definitions.
8.110.020 License—Required—Display.
8.110.030 License—Application.
8.110.040 License—Investigation of applicant.
8.110.060 License—Transfer.
8.110.070 License—Suspension.
8.110.080 License—Revocation.
8.110.090 License—Operating under suspension.
8.110.100 License—Misrepresentation in application.
8.110.110 License—Hearing for revocation or suspension.
8.110.120 Signs on vehicle.
8.110.130 Schedule—Filing.
8.110.140 Schedule—Customer form—Contents.
8.110.150 Schedule—Customer form—Retention time period.
8.110.160 Schedule—Charges in excess.
8.110.170 Schedule—Additional information.
8.110.180 Statements—Original to customer.
8.110.190 Statements—Information.
8.110.200 Statements—Retention of duplicate.
8.110.210 Contracts.
8.110.220 Insurance or bond.
8.110.230 Restrictions on actions of operators.
8.110.235 Towing from certain private property.
8.110.240 Change of address.
8.110.250 Wrecker to be present only on request.
8.110.260 Removal of vehicle in serious accident.
8.110.270 Short wave radio receiver.
8.110.275 Provision for release of towed cars.
8.110.280 Applicability of chapter.
8.110.290 Penalty for violation.

8.110.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

A. "Collector" means the License Collector of the City.

B. "Cruising" means operating a wrecker to and fro on a public highway at a slow rate of speed or in any other fashion for the purpose of soliciting business along the public highway.

C. "Highway" means any highway, street, alley, public place, square, or roadway within the corporate limits.

D. "Motor vehicle" includes every vehicle which is self-propelled.

E. "Owner" means any person who holds the legal title of a motor vehicle or who has the legal right of possession thereof.

F. "Person" includes the singular and plural and means and includes any person, firm, partnership, corporation, association, club, society, or any form of association or organization.

G. "Short wave receiver" means a radio receiver which is capable of operating on a frequency assigned by the Federal Communications Commission for fire, police, municipal, or other governmental uses.

H. "Soliciting" means requesting or attempting to persuade an owner or someone on his behalf to give permission to a wrecker to remove, repair, or store a

disabled motor vehicle, for a consideration, without a previous request from the owner or someone on his behalf.

I. "Vehicle" means every device in or by which any person or property is or may be drawn upon a public highway, except devices moved only by human power or works exclusively upon stationary rails or tracks, and includes trailers and semi-trailers.

J. "Wrecker" means a mechanically propelled vehicle equipped with a boom and winch or any other mechanical device used to raise, hoist and tow, transport, convey or move a motor vehicle from one location to another location or destination by the owner or someone on his behalf. (1960 C., § 664.010; 1994 C., § 8.110.010; Ord. No. 59976, § 1, 1986; Ord. No. 51511, § 1, 1962; Ord. No. 51288, § 1, 1962.)

City Counselor Ops.: 8813

8.110.020 License—Required—Display.

A. It shall be unlawful for any person to operate a wrecker within the City unless such person shall first obtain a license from the License Collector. Application for a license shall be made upon a form furnished by the License Collector and any license issued shall be affixed to the right lower corner of the windshield of the wrecker for which the license is obtained.

B. If and when it shall become lawful for City licensed wreckers to cross the City limits line and operate in the county and its municipalities, incorporated or unincorporated, in conformance with the county law regulating such traffic, then shall county-licensed wreckers (located solely in the county and its municipalities, incorporated or unincorporated), conforming with the provision of this chapter as amended, be authorized to cross the City limits line and operate in the City, with the following exceptions:

1. Any wrecker owned solely or partially by a resident of the City; or any wrecker owned solely or partially by any business, firm, or corporation located or partially located within the City must obtain and display a license from the License Collector of the City as required by this chapter regardless of any other licenses obtained or displayed.

2. Any person, firm, or corporation which contracts with any governmental body of the City for the towing of vehicles under any agreements, verbal or written, must first obtain a wrecker license as required by this chapter regardless of any other licenses held by said vehicle. (1960 C., § 664.020; 1994 C., § 8.110.020; Ord. No. 60294, § 2, 1987; Ord. No. 57218, § 2, 1976; Ord. No. 51288, § 2, 1962.)

Cases:

Ordinance 51288 of the City of St. Louis was held valid against contention that it imposed an improper burden on interstate commerce. *Kunz v. City of St. Louis,* 602 S.W. 2d 742 (1980).

Ordinance 51288 is a valid regulatory measure enacted pursuant to the city's police power and does not impose a revenue tax. *Kunz v. City of St. Louis,* 602 S.W. 2d 742 (1980).

City Counselor Ops.: 8813

McQuillin:

24.628 Towing on streets; police and private towing

8.110.030 License—Application.

The application for the license shall contain the following:

A. Name and address of the applicant; if a natural person, the age, date, and place of birth;

B. If a corporation, the state under which incorporated, the date of incorporation, the address of the principal office, and the names and addresses of its officers;

C. If any other type of organization, the name thereof, the location of its office, and the names and addresses of the principal officers, directors, trustees, or managing officials or partners;

D. The place from which the wrecker will operate and the number of such vehicles to be operated;

E. A description of each wrecker giving also the serial and motor number;

F. There shall be annexed to the application an affidavit to be sworn to by the applicant. (1960 C., § 664.030; 1994 C., § 8.110.030; Ord. No. 5 1288, § 3, 1962.)

8.110.040 License—Investigation of applicant.

The collector shall cause an investigation to be made to ascertain if the applicant, or the principal officers, directors, trustees, or managing officials or partners of the applicant, is a person of good moral character and to determine whether the vehicle is in such condition that it can be operated in a safe manner. The applicant, or the principal officers, directors, trustees, or managing officials or partners of the applicant, shall file with the application a sworn statement setting forth each and every conviction for violation of federal, state or City laws, statutes or ordinances, or, in lieu thereof, a true and complete summary in writing of

their police record as indicated by the records of the Police Department of the City. Such statement or summary of applicant's police record shall be considered as part of the application. No license shall be issued unless the applicant, or the principal officers, directors, trustees, or managing officials or partners of the applicant are persons of good moral character, and unless each vehicle has been properly inspected and licensed by the state and is in good operating condition. (1960 C., § 664.040; 1994 C., § 8.110.040; Ord. No. 58307, § 1(part), 1981; Ord. No. 51288, § 4, 1962.)

8.110.060 License—Transfer.

No license shall be transferred from one owner to another, but an owner may transfer the license of one wrecker to another wrecker. The transfer shall only be made on approval of the License Collector after written request made to him on forms to be provided by him for that purpose. (1960 C., § 664.060(a); 1994 C., § 8.110.060; Ord. No. 51288, § 6(a), 1962.)

8.110.070 License—Suspension.

Whenever it shall be shown, or whenever the License Collector has knowledge that a person licensed hereunder has violated any of the provisions of this chapter, the license shall be suspended by the License Collector for a period of not less than five days nor more than fifteen days. (1960 C., § 664.060(b); 1994 C., § 8.110.070; Ord. No. 51288, § 6(b), 1962.)

8.110.080 License—Revocation.

Whenever it shall be shown or whenever the License Collector has knowledge that a person licensed hereunder has twice violated any of the provisions of this chapter within a period of one year, the License Collector shall revoke the license for a period of one year. (1960 C., § 664.060(c); 1994 C., § 8.110.080; Ord. No. 51288, § 6(c), 1962.)

8.110.090 License—Operating under suspension.

A licensee who operates his wrecker during the period when his license is under suspension shall suffer the revocation of his license for a period of one year. (1960 C., § 664.060(d); 1994 C., § 8.110.090; Ord. No. 5 1288, § 6(d), 1962.)

8.110.100 License—Misrepresentation in application.

Any material misrepresentation in the application for a license shall result in the revocation of a license for a period of one year. (1960 C., § 664.060(e); 1994 C., § 8.110.100; Ord. No. 51288, § 6(e), 1962.)

8.110.110 License—Hearing for revocation or suspension.

Before revoking or suspending any license granted hereunder the License Collector shall give the licensee at least ten days' written notice of any complaint or charge against him and shall fix the date for a public hearing on the complaint or charge, upon which hearing the licensee shall have the right to have counsel and produce witnesses in his behalf. If the License Collector shall, after the hearing, revoke the license of the licensee, the decision, order and action shall be reviewable in the Circuit Court under Administrative Review Act, RSMo 536.100 et seq. (1959), filed by the licensee so affected within thirty days after the rendition of the decision. (1960 C., § 664.060(f); 1994 C., § 8.110.110; Ord. No. 51288, § 6(f), 1962.)

8.110.120 Signs on vehicle.

On each side of a wrecker there shall be legibly printed in letters not less than one and one-half inches in height the following:

A. Name and address of the licensee and the license number assigned to him by the License Collector;

B. The phrase "Licensed Tow Vehicle of the City of St. Louis";

C. The phrase "Request schedule of prices filed with the Police Department before engaging this vehicle." (1960 C., § 664.070; 1994 C., § 8.110.120; Ord. No. 51510, § 1, 1962; Ord. No. 51288, § 7, 1962.)

8.110.130 Schedule—Filing.

The owner of a wrecker shall prepare and file in triplicate with the License Collector a schedule of maximum prices to be charged for the towing and storage of disabled vehicles. The schedule may be based on time, mileage or a combination of both. In addition the schedule may include the minimum charge for any undertaking involving towing and storage. One copy of the schedule shall be retained by the License Collector, one copy shall be returned to the applicant upon the issuance of a license and one copy shall be forwarded to the Police Department. (1960 C., § 664.080(a); 1994 C., § 8.110.130; Ord. No. 51288, § 8(a), 1962.)

8.110.140 Schedule—Customer form—Contents.

Prior to the undertaking of a job the licensee or his agent shall present the schedule to the customer for his

examination. The schedule shall be on a special form established by the License Collector which shall serve not only to advise the customer of the basis of charges under which the job is to be done, but also as an authority for the commencing of the tow as a work order. This form shall be in duplicate and the customer will sign on a space provided below a boldfaced printed statement declaring "I have examined the schedule of prices and I hereby authorize the towing of my vehicle." The licensee or his agent or employee shall give one copy to the customer and retain the original for his files. (1960 C., § 664.080(b); 1994 C., § 8.110.140; Ord. No. 51288, § 8(b), 1962.)

8.110.150 Schedule—Customer form—Retention time period.

The original statement shall be retained by the licensee for a period of six months and shall be exhibited by him, upon demand, to the License Collector or his authorized representative. (1960 C., § 664.080(c); 1994 C., § 8.110.150; Ord. No. 51288, § 8(c), 1962.)

8.110.160 Schedule—Charges in excess.

It shall be unlawful to charge a sum in excess of that authorized by the schedule filed with the License Collector. (1960 C., § 664.080(d); 1994 C., § 8.110.160; Ord. No. 51288, § 8(d), 1962.)

8.110.170 Schedule—Additional information.

The form used by the licensee shall in addition to the information contained in Section 8.110.140 contain the following:

A. The full name and address of the licensee;

B. The full name of the operator of the wrecker;

C. The full name and address of the person engaging the wrecker;

D. The state license plate number of the disabled vehicle;

E. The state license plate number of the wrecker;

F. The number of the license issued to the wrecker, pursuant to this chapter;

G. Any other information required by the License Collector. (1960 C., § 664.080(e); 1994 C., § 8.110.170; Ord. No. 51288, § 8(e), 1962.)

8.110.180 Statements—Original to customer.

All persons operating a wrecker, or their agents, when operating the wrecker shall keep in their possession a pad of statements containing his or her name and the address of his or her place of business, and before towing a disabled vehicle from a place of disability shall prepare one of the statements in duplicate and furnish the original to the owner of the disabled vehicle or to his authorized representative. (1960 C., § 664.090(a); 1994 C., § 8.110.180; Ord. No. 51288, § 9(a), 1962.)

8.110.190 Statements—Information.

The statement shall contain the following information:

A. All the subject matter and information set forth in Section 8.110.170;

B. The full name and address of the person operating the wrecker;

C. The full name and address of the person engaging the wrecker;

D. The state registration number of the disabled vehicle;

E. The total amount to be charged for towing and the storage rate per day or price thereof. (1960 C., § 664.090(b); 1994 C., § 8.110.190; Ord. No. 51288, § 9(b), 1962.)

8.110.200 Statements—Retention of duplicate.

A duplicate of each statement issued shall be retained by the operator of the wrecker for a period of six months and shall be exhibited by him upon demand to the License Collector or his authorized representative. (1960 C., § 664.090(c); 1994 C., § 8.110.200; Ord. No. 51288, § 9(c), 1962.)

8.110.210 Contracts.

The provisions of Sections 8.110.130—8.110.200 shall not be applicable to any licensee operating a wrecker under the terms of this chapter where the licensee is under a written contract for a specific period of time with any person, firm or corporation to tow, transport, convey or move any disabled vehicle owned or controlled by the person, firm, or corporation to a specific location so designated for a consideration set forth in the contract, provided that the licensee under this chapter has in his possession at all times while towing, transporting, conveying or moving the disabled vehicle, the contract or verified copy thereof and shall display the contract or verified copy when required to do so by any law enforcement officer. This provision shall not render or relieve the licensee from complying with the other provisions of this chapter. (1960 C., § 664.091; 1994 C., § 8.110.210; Ord. No. 51445, § 1, 1962; Ord. No. 51288, § 9A, 1962.)

8.110.220 Insurance or bond.

No permit to operate a wrecker shall be issued until and unless the applicant shall first obtain a policy of insurance in a company authorized to do business in the state or a bond of indemnity, acceptable to the License Collector, with limits for bodily injury liability of at least twenty-five thousand dollars ($25,000.00) for each person, fifty thousand dollars ($50,000.00) for each accident, and property damage liability of ten thousand dollars ($10,000.00) for each accident. (1960 C., § 664.100(a); 1994 C., § 8.110.220; Ord. No. 58307, § 1(part), 1981; Ord. No. 51288, § 10(part), 1962.)

8.110.230 Restrictions on actions of operators.

No operator of a wrecker shall:

A. Engage in cruising;

B. Invite or permit loitering within or near his wrecker;

C. Seek employment by repeatedly driving his vehicle to and fro in a short space on any highway, or otherwise interfering with the proper and orderly progress of traffic along the public highway;

D. Solicit or attempt to divert prospective patrons of another wrecker;

E. Solicit or divert prospective patrons of a given garage in the City to any other garage;

F. Solicit, demand or receive from any person any pay, commission or emolument whatever except the proper fare for transporting the disabled vehicle in accordance with the schedule of charges defined in Sections 8.110.130—8.110.170. (1960 C., § 664.100(c—h); 1994 C., § 8.110.230; Ord. No. 58307, § 10(b—g), 1981; Ord. No. 51288, § 10(b—g), 1962.)

8.110.235 Towing from certain private property.

A. Any tow truck operator, towing company or agent thereof removing a motor vehicle from private property within the City at the request of the owner or person having possession or control of the private property shall report the following information to the Police Department, which shall maintain a log of such reports: the fact of the removal, including the date and time of the removal and the location of the private property; the name and business address and telephone number of the private property owner; the name and business address and telephone number of the tow truck operator; the name and business address and telephone number of the towing company; the make, model, year, license number and vehicle identification number of the towed motor vehicle; the storage location of the towed motor vehicle; and any other information required by the Police Department. The reporting of information required in this section shall include an immediate report by the towing operator, towing company or agent thereof of the aforesaid information by telephone call to the Police Department before the removal and written notification to the Police Department within twenty-four (24) hours after the removal.

B. No owner or person having possession or control of private property on which four (4) or more parking spaces are located shall have the right to tow, remove, or impound any unauthorized motor vehicle which may be parked, stalled or otherwise left on the private property unless there is posted on the property at least twenty-four (24) hours prior to the towing, removal, or impounding notification by the owner or person having possession or control of the private property of the intent to have such unauthorized motor vehicles removed and sufficient information to assist in the prompt recovery of any motor vehicle removed, which said notification shall meet the following minimum requirements:

1. Such notification shall be posted on at least two (2) signs which are placed in a clearly conspicuous location on the private property;

2. Each sign shall be clearly legible with a minimum dimension of 12″ by 18″;

3. Each sign shall clearly state that unauthorized vehicles will be removed; and

4. Each sign shall clearly state the name, storage location and telephone number of the towing firm authorized to remove unauthorized motor vehicles from the private property.

The failure to properly post notification of the intent to tow, remove or impound unauthorized motor vehicles from private property, in violation of Subsection B of this section, shall not be considered as evidence of liability in any civil action arising out of the removal of unauthorized motor vehicles from private property.

C. The requirements set forth in Subsections A and B of this section shall not be applicable if: the motor vehicle is a disabled vehicle which is removed pursuant to Sections 8.110.180 or 8.110.210 of the Revised Code of the City of St. Louis (1980, Annotated), as amended (the "Code"); the motor vehicle is removed pursuant to Chapters 17.54 or 17.56 of the Code; or the motor vehicle is removed pursuant to

RSMo 304.157 (1986), as amended. (1994 C., § 8.110.235; Ord. No. 63115, § 1, 1994.)

8.110.240 Change of address.

Operators of wreckers shall promptly report all changes of address to the License Collector. (1960 C., § 664.100(i); 1994 C., § 8.110.240; Ord. No. 58307, § 10(h), 1981; Ord. No. 51288, § 10(h), 1962.)

8.110.250 Wrecker to be present only on request.

An operator of a wrecker shall not proceed to the scene of a disabled motor vehicle without having been requested to do so by the owner or his authorized representative. (1960 C., § 664.100(j); 1994 C., § 8.110.250; Ord. No. 58307, § 10(i), 1981; Ord. No. 51288, § 10(i), 1962.)

8.110.260 Removal of vehicle in serious accident.

An operator of a wrecker shall not remove a motor vehicle involved in an accident in which a person has been killed or seriously injured unless such vehicle has been released by a duly authorized member of the Police Department. (1960 C., § 664.100(k); 1994 C., § 8.110.260; Ord. No. 58307, § 10(j), 1981; Ord. No. 51288, § 10(j), 1962.)

8.110.270 Short wave radio receiver.

No person or agent of the person holding a license issued pursuant to this chapter shall use or have in his possession a short wave radio receiver as defined in this chapter while engaged in the business as a wrecker. (1960 C., § 664.100(l); 1994 C., § 8.110.270; Ord. No. 58307, § 10(k), 1981; Ord. No. 51288, § 10(k), 1962.)

8.110.275 Provision for release of towed cars.

The business shall maintain a 24-hour release provision for cars towed provided proper ownership is established and the towing charges are paid if any. (1994 C., § 8.110.275; Ord. No. 58307, § 1(part), 1981; Ord. No. 51288, § 10(l), 1962.)

8.110.280 Applicability of chapter.

The provisions of this chapter shall not be applicable to any wrecker engaged by the Police Department in the carrying out of its police functions and duties. (1960 C., § 664.110; 1994 C., § 8.110.280; Ord. No. 51288, § 11, 1962.)

8.110.290 Penalty for violation.

Any person, firm or corporation violating any provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined the sum of not less than one dollar nor more than five hundred dollars, or by imprisonment in the workhouse for a period not exceeding ninety days, or by both fine and imprisonment. (1994 C., § 8.110.290; Ord. No. 51288, § 13, 1962.)

Chapter 8.114

MISCELLANEOUS VOCATIONS

Sections:

8.114.010 Definitions.
8.114.020 Licenses—Required.
8.114.040 Licenses—Terms.
8.114.050 Licenses—Subject to ordinances.
8.114.060 Checkroom—License—Required.
8.114.080 Checkroom—License—Penalty for failure to obtain.
8.114.090 Checkroom—Receipt records.
8.114.100 Tailors.

8.114.010 Definitions.

When used in this chapter, the following words shall have the following meanings:

A. "Bill poster" means one who conducts the business of posting bills in public places for hire.

B. "Engraver" means one who carries on a place of business where engraving is done for hire.

C. "Lithographer" means one who maintains a place of business where lithographing is done for hire.

D. "Mercantile agent" means one having a place of business in the City where orders for the sale and delivery of merchandise are taken.

E. "Pistol gallery" means a place where pistol or gun shooting is permitted to be done for hire.

F. "Pool table" means a table on which the game of pool is played, maintained in a place accessible to the public, where a charge is made for the privilege of playing the game.

G. "Shooting gallery" means a place where guns or pistols are permitted to be fired, for a fee paid. (1948 C., Ch. 13, § 90; 1960 C., § 628.010; 1994 C., § 8.114.010.) See also § 8.100.070.

8.114.020 Licenses—Required.

It shall not be lawful for any person to exercise within this City the business of bill poster, engraver, lithographer, mercantile agent, or keep a billiard table, pool table, pistol gallery, shooting gallery without a

license therefor. (1948 C., Ch. 13, § 91; 1960 C., § 628.020; 1994 C., § 8.114.020.)

McQuillin:

24.204 Athletic and sporting activities, events and places

26.150 Licensing sports and gaming

8.114.040 Licenses—Terms.

Licenses granted under this chapter shall continue in force twelve months, except as otherwise provided.

No license of any kind shall be issued for a shorter period than that specified in each instance in this chapter, except in cases upon full statement of the facts appear to the License Collector worthy of charitable consideration, and that the applicants are truly unable to pay license for the full period stated. In such cases the License Collector, with the approval or upon the recommendation of the Mayor, is authorized to issue licenses for shorter periods, not less than one month, at pro rata rates.

Unless otherwise therein provided licenses granted for twelve months shall be for periods beginning on the following dates:

A. Bill posters, January 1;

B. Engravers and lithographers, April 1;

C. Mercantile agents, July 1. (1948 C., Ch. 13, § 93; 1960 C., § 628.040; 1994 C., § 8.114.040.)

8.114.050 Licenses—Subject to ordinances.

All licenses issued in pursuance of the provisions of this chapter shall be issued subject to the ordinances of the City existing when they are issued, or subsequently passed. (1948 C., Ch. 13, § 94; 1960 C., § 628.050; 1994 C., § 8.114.050.)

8.114.060 Checkroom—License—Required.

No person shall operate a place where coats, hats, umbrellas, parcels, baggage or other personal property of similar character are checked, for which fees or tips are customarily received, without first having obtained a license from the City for the privilege of operating such place. (1948 C., Ch. 13, § 95; 1960 C., § 624.010; 1994 C., § 8.114.060.)

8.114.080 Checkroom—License—Penalty for failure to obtain.

Any person who shall operate such place or checkroom without a license first having been procured shall be guilty of a misdemeanor. (1948 C., Ch. 13, § 97; 1994 C., § 8.114.080.)

8.114.090 Checkroom—Receipt records.

Every person operating a checkroom as described in Section 8.114.060 shall keep a daily record of its receipts in a book which shall be open at any time to the inspection of the License Collector of the City, his deputies or any person authorized by him to examine the records. (1948 C., Ch. 13, § 98; 1960 C., § 624.030; 1994 C., § 8.114.090.)

8.114.100 Tailors.

Any person who shall make any contract in the City by the terms of which the person undertakes to make, or causes to be made, any article of clothing for pay, shall pay to the License Collector of the City, on the first day of November of each year, an annual license tax in a sum equal to two percent of the contract price of all articles of clothing made or caused to be made during the preceding period of twelve months by the person.

This chapter shall not apply to any tailor or merchant tailor who shall pay to the License Collector the tax prescribed by Section 8.54.030. (1948 C., Ch. 13, § 99; 1960 C., Ch. §§ 623.010, 623.020; 1994 C., § 8.114.100.)

Chapter 8.116

LOCATION AND OPERATION OF CERTAIN BUSINESSES

Sections:

8.116.010 Permission required.

8.116.020 Stables.

8.116.030 Locations restricted.

8.116.040 Penalty for violation of Section 8.116.030.

8.116.010 Permission required.

No stone quarry shall be opened or brick kiln built, or soap factory, slaughterhouse, glue factory, vitriol factory, tannery, candle factory, livery stable, sales stable, boarding stable, or any other stable, whether for public or private use having accommodations for ten or more horses, or public or private garage, or place for the storing or caring for five or more automobiles, auto trucks, motor cars or other vehicles using gasoline or other volatile inflammable liquid or electricity as motive power, or public repair shop for automobiles, auto trucks or motor cars, shall be opened, built or established on any lot of ground or in any building within the City without written permission so to do, having

first been obtained from the Board of Public Service. (1948 C., Ch. 13, § 102; 1994 C., § 8.116.010.)

8.116.020 Stables.

No livery stable, boarding stable or any other stable used for public or private purposes having accommodations for ten or more horses shall be located within fifty feet of any existing inhabited residence, tenement house or apartment house, nor within one hundred feet of an existing building used as a place of public assemblage. (1948 C., Ch. 13, § 104; 1960 C., § 662.020; 1994 C., § 8.116.020.)

City Counselor Ops.: 9244

8.116.030 Locations restricted.

No stone quarry shall hereafter be opened or brick kiln located or slaughterhouse, glue factory, vitriol factory, soap factory, candle factory, tannery, junk yard, or garbage works established on any lot of ground or in any building within a distance of three hundred feet of any building, built or inhabited, or any building used as a place of public assemblage before the opening, locating or establishing of any of the classes of business mentioned. (1948 C., Ch. 13, § 103; 1960 C., § 662.010; 1994 C., § 8.116.030; Ord. No. 53751, § 1, 1966.)

City Counselor Ops.: 9244

8.116.040 Penalty for violation of Section 8.116.030.

Any person, firm or corporation who shall violate the provisions of Section 8.116.030, upon the conviction thereof shall be punished by fine of not less than two hundred fifty dollars and not more than five hundred dollars, or by imprisonment of not more than thirty days, or by both fine and imprisonment. Each day's violation shall constitute a separate offense. (1960 C., § 662.015; 1994 C., § 8.116.040; Ord. No. 53751, § 2, 1966.)

City Counselor Ops.: 9244

Chapter 8.118

MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE PROGRAM

Sections:

8.118.010 Minority and Women-Owned Business Enterprise Program.

8.118.020 Definitions.

8.118.030 Statement of policy.

8.118.040 Rules and regulations.

8.118.050 Minority and Women-Owned Business Enterprise Program staff and staff training.

8.118.060 Compliance tracking, monitoring and reporting.

8.118.070 Business Advisory Council (BAC) and the Small Business Program.

8.118.080 Approval of rules and regulations.

8.118.010 Minority and Women-Owned Business Enterprise Program.

A. *Minority and Women-Owned Business Enterprise Program Established.* A City of St. Louis Minority and Women-Owned Business Enterprise (M/WBE) Program is established by adoption of this chapter.

B. *Management, Monitoring and Annual Report.* St. Louis Development Corporation (SLDC) shall manage and monitor the certification and utilization of M/WBEs by the City of St. Louis and its prime contractors. Specifically, SLDC shall: (1) adopt rules and procedures to implement the M/WBE Program; (2) create, maintain, and distribute the directory of certified M/WBEs; (3) provide information and assistance to M/WBEs to increase their ability to effectively compete for City of St. Louis contracts; City should maintain a centralized website that lists all procurement opportunities (4) annually review the progress of each agency, department, and the corporation's achievement of the M/WBE goals; each agency shall have a procurement officer or designee who shall be the point of contact for monitoring and reporting MWBE compliance for the agency (5) ensure that solicitations issued by the City of St. Louis adhere to the M/WBE procurement procedures contained herein; (6) monitor M/WBE goals throughout the duration of the contract; and (7) present an annual report by January 31 of each year to the Mayor and the Board of Aldermen and hold a public forum no later than February 28 of each year detailing the participation of M/WBEs on the City of St. Louis contracts.

C. *Delegation of Duties.* SLDC may delegate all or a part of the duties of certification and compliance of the M/WBE Program. (Ord. No. 70767, § 1, 5-4-2018.)

8.118.020 Definitions.

When used in this chapter:

M/WBE shall mean Minority and Women-Owned Business Enterprise.

Award shall mean the selection of a vendor for a contract or subcontract for a specific dollar amount. Contract awards are made by the City of St. Louis, acting through its Board of Public Service (BPS) and as made through the Supply Division, to a prime contractor and by a prime contractor to a subcontractor.

Bid shall mean a bidder's response to a solicitation for bids, proposals, or statements of qualifications for a project that is at least partially funded by the City of St. Louis, but does not include state or federally-funded projects which have requirements that preempt the local M/WBE Program.

Bidder shall mean any individual, company, or association responding to a City of St. Louis and its associated entities solicitation.

Board letting shall mean the process by which all public work, except emergency work or repairs requiring prompt attention, shall be let by the Board of Public Service in compliance with Article XXII of the City Charter of the City of St. Louis.

Commercially-useful function shall mean a subcontract fulfilled by a bidder responsible for the materials, supplies, and services used in the performance of the contract. To determine whether a subcontractor is performing a commercially-useful function, the amount of work subcontracted shall be evaluated with respect to normal industry practices, including whether the amount the subcontractor is to be paid under the contract is commensurate with the work it is to perform. The subcontractor does not perform a commercially-useful function if its role is limited to an extra participant in a contract through which funds are passed in order to convey only the appearance of meaningful and useful subcontractor participation.

Contract shall mean a mutually-binding legal relationship or any modification thereof obligating the vendor to furnish construction, professional services, and/or goods and other services and the City of St. Louis to pay for them.

Formal procurement shall mean a competitive solicitation method by which bidders are invited by the City of St. Louis to bid through a published advertisement stating the scope, specifications, and terms of the proposed contract.

Good Faith Effort shall mean all actions taken by a bidder or prime contractor consistent with the requirements, rules and procedures established by SLDC to engage M/WBEs toward meeting the goals for minority and women business enterprise utilization.

Informal procurement shall mean a solicitation method by which competition is not required or an emergency work award is required, and the City of St. Louis is permitted to solicit bids directly from bidders. The City shall make all efforts to include M/WBEs in such informal procurements and ensure that M/WBEs are given fair and ample opportunity to participate.

M/WBE Utilization Plan shall mean the form detailing the goods and services to be provided to the prime contractor by each M/WBE listed to meet the M/WBE goals. The M/WBE Utilization Plan must be provided at bid opening by each bidder and include the name(s) of all M/WBE subcontractors to be utilized in the contract, certification information, the items of work to be performed, and their percentage of the bid amount.

Minority and women-owned business enterprise availability shall mean the number of businesses located in the St. Louis Metropolitan Area that are willing and able to provide the goods and services being procured by the City of St. Louis.

Notice of intent to perform a subcontract shall mean the form the bidder is required to submit to the City at the time of bid opening signed by each subcontractor listed in the M/WBE Utilization Plan. Failure to include a completed Notice of Intent form signed by each subcontractor will be sufficient cause to reject a bid as non-responsive.

Prime contractor shall mean the individual or business that has an agreement with the City of St. Louis and that has the full responsibility for completing the terms of the agreement.

Subcontractor shall mean an individual or business that has a contract to perform a service or provide materials, equipment, or supplies as a part of the scope of work set forth in a prime contract with the City of St. Louis.

User Department shall mean the department that develops the requisitions for the City of St. Louis. (Ord. No. 70767, § 2, 5-4-2018)

8.118.030 Statement of policy.

A. *Commitment.* The City of St. Louis is committed to promoting fair and open competition for M/WBEs seeking to do business with the City of St. Louis. The City of St. Louis shall ensure that prime contractors do not discriminate in their solicitation, selection, or treatment of subcontractors. Therefore, the M/WBE Program shall have the resources necessary for the effective

implementation of the M/WBE Policy and the components contained within the M/WBE Program. The M/WBE Program and related responsibilities shall be communicated to the City of St. Louis' internal and external stakeholders.

B. *Policy Implementation.* The M/WBE Program shall be adopted to implement the City of St. Louis' M/WBE Policy. The City of St. Louis shall take all necessary, reasonable, and legal action to alleviate documented disparity and ensure that all businesses are afforded the maximum opportunity for participation in the City's contracting. The M/WBE Program shall ensure that the City of St. Louis contracts are awarded in a manner that promotes economic inclusion of all segments of the business population, regardless of race, sex, or gender, to maximize the economic vitality and development of the City of St. Louis.

C. *Goals.* The City of St. Louis has established project goals to ensure that M/WBE utilization on its construction, professional services, and goods and other services contracts reflects the level of M/WBE availability. The project goals are based on the findings of statistically significant disparity from the 2015 Disparity Study.

The 2015 Disparity Study documented a statistically significant disparity in the City of St. Louis' award of construction prime contracts to African American, Hispanic American, and Women-owned businesses. In addition, African American, Asian American, Hispanic American, and Women-owned businesses were found to have a statistical disparity in the City of St. Louis' award of professional services prime contracts. The study also documented a statistical disparity in the City of St. Louis' award of goods and other services prime contracts to African American, Asian American, and Women-owned businesses. In addition, the study documented a certain availability and disparity for Asian Americans and Native Americans.

Furthermore, the 2015 Disparity Study documented a statistical disparity in the award of construction subcontracts to African American, Hispanic American, and Women-owned businesses by the City of St. Louis' prime contractors. There were insufficient contract records available to calculate disparity for professional services subcontracts. Based upon the 2015 Disparity Study the following shall be implemented:

1. Complete prime and all subcontract records will be collected for a 12-month period and a disparity study update for professional services subcontracts will be performed within six (6) months of effective date of this chapter.

2. The project goal shall be applied to solicitations for construction bids. The construction project goal is the goal that shall be met by utilization of African American, Hispanic American, Asian American, Native American and Women-owned construction subcontractors.

3. Based on availability, the construction project goal shall be 21% for African American-owned business enterprises, 2% for Hispanic American-owned business enterprises, 0.50% for Asian American-owned business enterprises, 0.50% for Native American-owned business enterprises and 11% for Women-owned business enterprises.

4. Proof of project goal attainment shall be submitted at the time of bid opening and documented on the M/WBE Utilization Plan. If a bidder fails to meet the solicitation's construction project goals, the bidder can provide evidence of a good faith effort to meet the goal. A bid that does not meet the subcontract goals or evidence a good faith effort shall be deemed nonresponsive and therefore ineligible for award. The M/WBE Utilization Plan shall be submitted at the time of bid opening or board letting, as applicable, for project goal compliance, verification of subcontractor certification, and evidence that the subcontractor shall perform a commercially useful function.

5. Good faith effort elements are evaluated to determine whether a bidder has provided evidence of a good faith effort to meet the M/WBE subcontract goals. In order to be considered a responsive bid, the bidder must demonstrate a sufficient good faith effort.

6. M/WBE prime contract bid discount shall be applied to construction and goods and other services prime contracts on contracts of $300,000.00 or less. A five percent (5%) bid discount on construction prime contracts shall be applied to African American, Hispanic American, Asian American, Native American, and Women-Owned Business Enterprise bidders. A five percent (5%) bid discount on goods and services prime contracts shall be applied to African American, Asian American, Native American and Women-owned Business Enterprise bidders. The bid discount shall be applied during the evaluation process. It shall lower the eligible M/WBE's bid but shall not reduce the contract award amount. The solicitation shall describe the bid discount as applied to eligible M/WBE prime contrac-

tors in the two industries. In order to qualify for the bid discount, the eligible M/WBE bidder shall include in its bid a copy of the current M/WBE certification approval letter issued by the M/WBE Program.

7. M/WBE incentive credits shall be applied to the evaluation of professional service prime contracts, but may not include state- or federally-funded projects which have requirements that preempt the local M/WBE Program. A fifteen percent (15%) incentive credit as part of the total points evaluated on professional service prime contracts shall be applied to African American, Asian American, Native American, Hispanic American, and Women-owned Business Enterprises. The incentive credit shall be applied during the evaluation process. In order to qualify for the incentive credit, the M/WBE prime contractor must include a copy of the current M/WBE certification approval letter issued by the M/WBE Program. The solicitation shall describe the incentive credit as applied to eligible M/WBE prime contractors. In order to qualify for the incentive credit, the M/WBE prime contractor must include in its proposal or statement of qualifications a copy of the M/WBE certification approval letter issued by the M/WBE Program.

8. Notwithstanding any other provision of this chapter, the 2015 Disparity Study will be updated two years from the effective date of this chapter.

D. *Training.* To increase the availability of African American, Hispanic American, Asian American, Native American and Women-owned businesses in the City's M/WBE certification pool, the City shall consider:

1. Increased M/WBE certification assistance to include training, technical assistance and support services to help start-ups in such areas as:

a. Basic business management skills;

b. Marketing Plans;

c. Business financing resources;

d. Assistance in completing the City's M/WBE certification application;

e. How to Do Business with the City seminars;

f. Offering services in additional languages other than English, i.e. Spanish;

2. Partnering with local community colleges to provide business assistance for start-up firms.

3. Providing grants up to $10,000.00 to ethnic and gender focused chambers of commerce to:

a. Provide business management skills including how to obtain a business license;

b. Conduct outreach to businesses to increase the number of certified M/WBEs;

c. Mentor businesses on local and state certified payroll requirements.

4. Partnering with local churches and ethnic grocery markets by providing How to Become M/WBE Certified and How to Do Business with the City seminars. (Ord. No. 70767, § 3, 5-4-2018)

8.118.040 Rules and regulations.

The implementation of the M/WBE Program shall adhere to the following Rules and Regulations:

A. *Management.* The Minority Business Development and Compliance Office of SLDC shall be the office that manages the M/WBE Program for SLDC. The President of the Board of Public Services (BPS) and the Director of the Minority Business Development and Compliance Office will work together to identify qualified contractors to be included in bidding public works contracts.

B. *Contract Rotation Program.* The City of St. Louis through its Supply Division shall establish a contract rotation program for procuring goods and services contracts under $25,000.00 using an informal solicitation. Eligible businesses shall be placed on the rotation list according to their initial certification date. Businesses with the same certification date are placed on the list alphabetically according to their name. Once awarded a contract, the M/WBE shall be subsequently placed at the bottom of the rotation list.

C. *Advertisements.* The City of St. Louis shall advertise solicitations within a sufficient period of time to allow bidders to solicit bids from M/WBE subcontractors. The City of St. Louis shall publish notices of contract opportunities in The City Journal and on the City's website at least thirty (30) days before the board letting date. Bid notices shall additionally be disseminated by SLDC through the certified M/WBE electronic mailing list at least thirty (30) days before the responses are due.

All User Departments shall adopt a standard template for advertisements with input from the Minority Business Development and Compliance Office. The Minority Business Development and Compliance Office will review all advertisement templates and provide the User Departments with comments.

If advertisements do not meet the M/WBE requirements, the office of the Register shall reject the advertisement and send it back to the User Department and

recommend the next available publication date that complies with the thirty (30) day publication requirement.

The notice shall include the name of the contract and bid opening date; project manager's name and contact information, if known at the time the notice is prepared; pre-bid conference date, time, and location; deadline for submission of written questions; summary of the scope of work; contact information to secure the complete solicitation; and M/WBE subcontracting goals and bid discounts.

An electronic directory listing certified M/WBEs shall be maintained by the Minority Business Development and Compliance Office. The directory shall be updated monthly to reflect any new certifications or changes to existing certifications. A link to The directory shall be published on the City of St. Louis' Minority Business Development and Compliance Office webpage and be downloadable in Microsoft Office Excel

D. *Mobilization Payments.* When mobilization payments are approved as a contract line item for the prime contractor, the subcontractor shall be paid a reasonable amount not to exceed five percent (5%) of the amount of their contract by the prime contractor no later than five (5) business days before they are required to mobilize to start their contracted work. The prime contractor shall submit a request to BPS for mobilization payments using the normal monthly payment process as detailed in the contract documents.

E. *Payment Verification Program.* The City of St. Louis shall establish a payment verification program. Payments made to M/WBE subcontractors shall be verified in order to monitor compliance with the Prompt Payment Act, Section 34.057.1 RSMo. The payment verification system shall allow subcontractors to electronically notify the City of St. Louis of late payments or non-payments in real time. Each subcontractor listed as paid for the previous billing cycle shall be electronically contacted to verify that payment was received. The Minority Business Development and Compliance Office shall manage the program.

F. *Resolving Disputes.* Dispute resolution standards shall be established to allow businesses to resolve issues relating to contract work performance. Invoice disputes between the prime contractor and the subcontractor shall be presented to the BPS project manager and the Minority Business Development and Compliance Office. BPS shall ensure that the dispute resolution process is handled in a timely manner and in accordance with dispute resolution standards. The decision can be appealed to a mediator comprised of a designee of the Mayor, the Director of the Minority Business Development and Compliance Office and the President of the Board of Public Service. The mediation process shall exhaust any administrative remedy available to the contractor and/or subcontractor. (Ord. No. 70767, § 4, 5-4-2018)

8.118.050 Minority And Women-Owned Business Enterprise Program staff and staff training.

The M/WBE Program implementation adheres to the following staffing requirements:

A. *Program Staff.*

1. There shall be adequate staff to support the responsibilities of the Minority Business Development and Compliance Office. The Minority Business Development and Compliance Office shall minimally have a director, four (4) compliance staff and certification staff, as their budget allows.

2. The Director of Minority Business Development and the staff shall develop programs and services that advance opportunities for growth of M/WBEs and ensure compliance with M/WBE Program objectives and responsibilities.

3. The Office shall oversee pre-award compliance with the M/WBE Program requirements, and monitor post-contract compliance to ensure that the M/WBE contract provisions are adhered to during the term of the contract.

4. The Office shall advise applicants regarding suitable completion of their certification applications, perform site visits, and participate in business outreach activities to increase the applicant pool.

5. The Office shall monitor M/WBE contract compliance and M/WBE contractor and subcontractor on site participation, investigate complaints, ensure contracts are properly and legally executed, and create a profile of each contractor by preparing site visit reports.

6. The Office shall compile, verify, and report data measuring the user department's compliance with contract goals and requirements and manage the Global Project Tracking System or any other system designated to ensure it captures the data necessary to generate the reports required to measure compliance with the M/WBE Program requirements. The Office shall also

manage all solicitations received from the user departments and develop comprehensive outreach strategies to meet the M/WBE goals using digital media vehicles.

7. The Office shall provide dispute resolution services and direct investigations of complaints from user departments, as well as from prime contractors and subcontractors.

B. *Training and Training Manual.* Routine User Department training shall be conducted to ensure all personnel are knowledgeable about the M/WBE Program requirements and capable of supporting the M/WBE Program and its policies and objectives. The training program shall be conducted by the Minority Development Business and Compliance Office. Three training programs shall be implemented:

1. *Annual Training Seminar.* Annual training seminars shall be held to inform staff of any changes to the M/WBE Program policy and procedures, and to promote the Program enhancements. An interactive portal shall be set up for City of St. Louis staff to give and receive virtual assistance, information, and responses to questions.

2. *New Employee Training.* New employee orientation shall be held quarterly by the Minority Development Business and Compliance Office to ensure that new employees understand the established policies and procedures. A printed copy of the M/WBE Program Training Manual shall be provided to each new City employee that handles such matters for the City of St. Louis prior to quarterly training.

3. *M/WBE Program Training Manual.* An M/WBE Program Training Manual describing the M/WBE Program mission, policy, and procedures shall be available to all staff electronically and shall be downloadable from the Minority Development Business and Compliance Office webpage. (Ord. No. 70767, § 5, 5-4-2018)

8.118.060 Compliance tracking, monitoring and reporting.

The M/WBE Program shall adhere to the following conditions of tracking, monitoring, and reporting:

A. *Centralized Tracking and Monitoring System.* The Minority Business Development and Compliance Office shall maintain a centralized tracking and monitoring system; Global Project Tracking System (GPTS) or any other designated system to ensure compliance with the M/WBE commitments listed in bid documents. The GPTS shall track subcontractor goals, commitments, and payments. The GPTS shall also monitor unauthorized subcontract substitutions, and late payments. A record of any discrepancies or proof of failure to comply with the contract goals and regulations shall be filed by the Minority Business Development and Compliance Office, and appropriate ramifications shall be determined by the Compliance Office and the President of the Board of Public Service. Compliance reports shall be submitted annually to the Mayor and the Board of Aldermen.

B. *Tracking Compliance.* The GPTS shall track a prime contractor's compliance with the contract goal to ensure that the M/WBEs listed as subcontractors are utilized. In the absence of a finding of a Good Faith Effort, a prime contractor's failure to meet an M/WBE subcontract goal during the contract term shall constitute a material breach of contract. The prime contractor shall be subject to liquidated damages for such a breach. Damages shall be assessed based upon the M/WBE goal shortfall and may not exceed the difference between the monetary amount of the participation goals set by the contract and the amount actually paid to M/WBEs. Damages shall be assessed during the project close-out by the Minority Business Development and Compliance Office and the President of the Board of Public Service, and withheld from a retention amount established to cover liquidated damages in addition to any other retention held under the contract. To the extent allowed by law, these funds shall be provided to St. Louis Development Corporation and used to provide business development and enhancement services for M/WBEs. All contracts that contain participation goals for African American, Asian American, and Women-owned businesses shall contain a provision that provides for the imposition of liquidated damages in the absence of a finding of Good Faith Efforts in the event the General Contractor fails to achieve the participation goals specified by this chapter. (Ord. No. 70767, § 6, 5-4-2018.)

8.118.070 Business Advisory Council (BAC) and the Small Business Program.

A. *Business Advisory Council.* A Business Advisory Council (BAC) shall be established and appointed by the Mayor and approved by the Board of Alderman to serve as an advocate for M/WBEs to increase access to the procurement process. The BAC shall have five (5) but not more than nine (9) members, each appointed by the Mayor and approved by the Board of Aldermen for staggered terms, with the Chairman designated and

appointed by the Mayor. A member may serve more than one term. The BAC members shall be approved by resolution of the St. Louis Board of Aldermen. The BAC shall advise and make M/WBE Program recommendations in the following areas:

1. Increasing access to contracting opportunities for M/WBEs;

2. Reviewing and advancing initiatives that impact M/WBE participation; and

3. Enhancing the notification process regarding prospective contract opportunities.

Rules and guidelines for the BAC shall be consistent with applicable laws for the conduct of its business. The BAC membership and guidelines shall be published on the Minority Business Development and Compliance Office's webpage.

Members shall serve for staggered terms of three (3) years. Initially up to four (4) members shall be appointed for a term of three (3) years, up to three (3) members shall be appointed for a term of two (2) years and up to two (2) members shall be appointed for a term of one (1) year. Vacancies shall be filled by appointment of the Mayor for the remainder of the vacant term. Each member shall serve without compensation.

The Mayor shall designate and appoint a Chairman and the committee shall elect a Secretary who shall each serve for three (3) years.

One (1) month prior to the end of the Chairman's and the Secretary's terms, successors shall be replaced pursuant to paragraph 4 above. The committee shall adopt rules consistent with applicable laws for the conduct of its business.

The committee shall meet quarterly to review compliance with this chapter. In addition, the committee shall at a minimum meet twice annually in open public session to receive general testimony from the public. All minutes and records of the committee shall be open to the public.

The committee shall monitor the effectiveness of the City's program described in this chapter and make such recommendations to SLDC as it sees fit. The actions, decisions and recommendations of the Committee are to further the policies and goals of this chapter and shall not be final or binding on the City but shall be advisory only.

B. *Annual Funding for M/WBE Program.* Subject to annual appropriation, the City's governing body agrees, and the Comptroller and Budget Director are hereby directed, to include annually in the City budget, to provide City revenues at a minimum sufficient to support the Data Analyst position and the centralized tracking and monitoring system in support of the M/WBE Program.

C. *Sunset Provision.* The City will require a periodic update of the disparity study to evaluate the effectiveness of the M/WBE Program. The M/WBE Program will sunset in eight years from adoption of the Program. The City will perform a disparity study within three years prior of the sunset date. (Ord. No. 70767, § 7, 5-4-2018.)

8.118.080 Approval of rules and regulations.

All rules and procedures not expressly stated in this chapter for the day-to-day operation and implementation of the M/WBE Program shall be approved by the St. Louis Development Corporation. (Ord. No. 70767, § 8, 5-4-2018.)

Chapter 8.120

CRIMINAL HISTORY OF APPLICANTS

Sections:

8.120.010 Prohibited practices.
8.120.020 Implementation and enforcement.
8.120.030 Penalties.

8.120.010 Prohibited practices.

A. It shall be prohibited for employers located in the City of St. Louis with ten or more employees to:

1. Base a hiring or promotional decision on a job applicant's criminal history or sentence related thereto, unless the employer can demonstrate that the employment-related decision is based on all information available including the frequency, recentness and severity of the criminal history and the history is reasonably related to or bears upon the duties and responsibilities of the job position; and

2. Inquire about a job applicant's criminal history until after it has been determined that the applicant is otherwise qualified for the job position, and only after the applicant has been interviewed for position except that such an inquiry may be made of all job applicants who are in the final selection pool from which the position will be filled.

3. Publish job advertisements excluding applicants on the basis of criminal history, regardless of whether such advertisements are in hardcopy or electronic format; and

4. Include statements excluding applicants on the basis of criminal history in job application forms and other employer generated forms used in the hiring process, regardless of the whether such forms are hardcopy or electronic format.

5. Inquire into, or require applicants to make disclosures regarding their criminal history on initial job application forms and other employer generated forms used in the initial phase of the hiring process, whether such forms are in hardcopy or electronic format.

6. Seek to obtain publicly available information concerning job applicants' criminal history.

B. The prohibitions contained in Subsection A, paragraphs 3, 4, 5 and 6 of this Section One shall not apply to job positions where federal or state laws and regulations, City ordinance prohibits employers from employing individuals with certain criminal histories. (Ord. No. 71074, § 1, 1-27-2020.)

8.120.020 Implementation and enforcement.

A. Individuals aggrieved by a violation of this chapter may submit complaints to the Civil Rights Enforcement Agency, who shall investigate such complaints and recommend those complaints to have been determined with merit to the Office of the License Collector for employer compliance. (Ord. No. 71074, § 2, 1-27-2020.)

8.120.030 Penalties.

A. Employers violating this chapter shall be subject to the following penalties:

1. For the first violation an employer shall receive a warning issued by the Office of the License Collector, or order requiring that they come into compliance with the provisions of this chapter within thirty days.

2. For the second violation an employer shall receive an order issued by the Office of the License Collector requiring that they come into compliance with the provisions of this chapter within thirty days and a civil penalty as determined by the License Collector, that should not exceed the maximum amount permitted under the revised code and ordinances of the City of St. Louis.

3. For the third violation an employer shall be subject to potential revocation of their business operating license as deemed appropriate by the Office of the License Collector.

B. The Office of the License Collector in coordination with the Director of the Civil Rights Enforcement Agency, and the Chair of the Committee on Legislation shall adopt rules and policy procedures for imposing the penalties and shall present said rules and policy procedures to the Legislation Committee of the Board of Aldermen. (Ord. No. 71074, § 3, 1-27-2020.)

Chapter 8.122

THIRD-PARTY FOOD DELIVERY SERVICES

Sections:

8.122.010	**Definitions.**
8.122.020	**Third-Party Fees.**
8.122.030	**Business License.**
8.122.040	**Base Pay, Gratuities, and Payment to Delivery Drivers.**
8.122.050	**Exemptions.**

8.122.010 Definitions.

For the purposes of this chapter, the following terms have the following meanings:

"Base Wage" means any money paid, whether by the hour or otherwise, to a delivery driver by a third-party delivery service, in exchange for work performed, but not including gratuities, bonuses, allowances, shift differentials, or any other monetary payments that may contribute to a delivery driver's total compensation.

"Business Establishment" shall have the same meaning as prescribed for the term "food establishment" as codified in Chapter 11.42.040 - Section 1-201.10 - Amended (1) of the Revised Code of the City of St. Louis and/or the same meaning as prescribed for the term "merchant" as codified in Chapter 8.56.010 of the Revised Code of the City of St. Louis.

"Covered Establishment" means any business establishment that offers a single commercial transaction over the internet, whether directly or through a third-party delivery service, the sale and same-day delivery of food and beverage items, or goods to customers from one or more retail locations within the City.

"Delivery worker" means a person engaged by a third-party delivery service or covered establishment for the purpose of delivering online orders.

"Goods" means any merchandise, product or ware offered for sale, including but not limited to food products, groceries, meals and non-food products.

"Gratuity" means a sum of money, paid voluntarily by a customer, when or after placing an online order directly from a covered establishment or through a third-party delivery service that is in addition to the price of such goods and other charges such as taxes and

fees, where such voluntary sum is paid through website, mobile application, or similar platform that allows the customer to choose the amount of the voluntary sum and that refers to the sum as a gratuity or tip, or by another, similar name that would suggest to a reasonable person that the sum, or a substantial portion thereof, would be received by the delivery worker in addition to their base wage.

"Online Order" means an order placed by a customer through a platform provided by a third party delivery service or covered business establishment.

"Purchase price" means the menu price of a food or beverage, or goods order from a covered establishment, excluding taxes, gratuities and any other fees that may make up the total cost of a customer's online order.

"Third-Party Delivery Service" means any website, mobile application, or similar platform that offers or arranges for the sale of food, beverages, and/or goods and same day delivery or same-day pickup from no fewer than twenty (20) separately owned and operated business establishments.

"Third-Party Fees" means any and all fees or commissions charged to a business establishment by a third-party delivery service, including but not limited to: advertising, promotions, delivery, sales processing, and/or credit card processing. (Ord. No. 71193, § 1, 7-24-2020)

8.122.020 Third-Party Fees.

For 60 days after a proclamation signed by the Mayor of the City of St. Louis under Article XIII, Section 14 C of the St. Louis City Charter has been lifted, it shall be unlawful for a third-party delivery service to charge covered establishments located in the City of St. Louis third party fees and/or commissions totaling more than 20% of the total purchase price of each online order. (Ord. No. 71193, § 2, 7-24-2020)

8.122.030 Business License.

It shall be unlawful for a third-party delivery service to conduct business with business establishments located in the City of St. Louis without first having obtained a business license from the City of St. Louis' License Collector. Applications for third-party delivery service licenses and any renewals thereof shall be made to the License Collector in such form and in such manner as the License Collector shall prescribe by written policy. (Ord. No. 71193, § 3, 7-24-2020)

8.122.040 Base Pay, Gratuities, and Payment to Delivery Drivers.

A. Before or at the same time as a gratuity is solicited from a customer in connection with an online order placed directly with a covered establishment or through a third-party delivery service as the case may be, shall disclose using plain language and in a manner calculated to provide clear notice to the customer of the following information regarding the covered establishment and/or third-party delivery service's policies regarding gratuities for delivery workers:

1. The proportion or fixed amount of each gratuity that is distributed to the worker who delivered the online order, including whether such gratuity is required to be shared with other workers.

2. The amount of each gratuity that is used to compose each delivery worker's base wage unless 0% of the gratuity is used to compose each delivery worker's base wage.

B. It shall be unlawful for a third-party delivery service to misstate or misrepresent any information required to be disclosed pursuant to this section, or otherwise fail to comply with the disclosure requirements of this section.

C. It shall be unlawful for a third-party delivery service to reduce the base rate or gratuities paid to the delivery driver as a result of the requirements of this chapter. (Ord. No. 71193, § 4, 7-24-2020)

8.122.050 Exemptions.

Any third-party delivery service with its only place of operation located within the City of St. Louis and providing services to no more than forty (40) separately owned and operated covered establishments shall be exempt from this chapter. (Ord. No. 71193, § 5, 7-24-2020)

Chapter 8.124

FINGERPRINT-BASED BACKGROUND CHECK REQUIREMENTS

Sections:

8.124.010 Intent.
8.124.020 Definitions.
8.124.030 Certain fingerprinting requirements.
8.124.040 Fitness determinations.
8.124.050 Revocation of positive fitness determination.

8.124.010 Intent.

This chapter is enacted pursuant to RSMo chapter 43, § 43.535, to regulate employment, and licensure as a watchman, private security officer, or courier, with the City of St. Louis.
(Ord. No. 71868, § 1, 7-2-2024.)

8.124.020 Definitions.

The following definitions shall apply for the purposes of this chapter:

A. *Watchman.* A person employed with or without any firearm, weapon or protective device to perform the tasks of observation, protection and reporting on/in a designated area.

B. *Courier.* A uniformed person employed to carry out the task of protecting and transporting money or other valuables, including an armed courier.

C. *Private security officer.* A person employed with certain powers to protect life and property on/in a designated area, who must be in uniform, and may or may not be armed.

D. *Licensee.* Any watchman, private security officer, or courier who holds a license issued by the City of St. Louis, Missouri.

E. *Intern.* A student or trainee who works, sometimes without pay, for the City of St. Louis in order to gain experience.

F. *Contractor.* A person performing work or service of any kind for the City of St. Louis in accordance with a contract with the City of St. Louis.
(Ord. No. 71868, § 3, 7-2-2024.)

8.124.030 Certain fingerprinting requirements.

The following persons may be fingerprinted and the City of St. Louis may submit their fingerprints to the Missouri State Highway Patrol, Criminal Justice Information Services (CJIS) Division:

A. Prospective and current employees, interns, volunteers, and contractors for employment purposes of or with the City of St. Louis; and

B. Any person seeking a license granted by the City of St. Louis Police Division for employment as a watchman, private security officer, or courier in the City of St. Louis.
(Ord. No. 71868, § 4, 7-2-2024.)

8.124.040 Fitness determinations.

A. The City of St. Louis shall render a positive or negative fitness determination based upon the results of the fingerprint-based criminal background check after:

1. The Missouri State Highway Patrol, CJIS Division compares the subject's fingerprints against its criminal file and submits the fingerprints to the Federal Bureau of Investigation (FBI) for a comparison with national criminal history records;

2. The results of the FBI check are returned to the Missouri State Highway Patrol, CJIS Division; and

3. The Missouri State Highway Patrol, CJIS Division disseminates the results to the City of St. Louis.

B. In rendering a fitness determination, the City of St. Louis will decide whether the subject of record has been convicted of or is under pending indictment for:

1. A crime which bears upon his/her ability or fitness to serve in that capacity;

2. Any felony; or

3. A misdemeanor which involved force or threat of force, theft, controlled substances, or was a sex-related offense.

C. Additionally, the City of St. Louis may consider the length of time between an offense and the fitness determination, the number of offenses, and the relatedness of an offense to the duties and responsibilities of the position.
(Ord. No. 71868, § 4, 7-2-2024.)

8.124.050 Revocation of positive fitness determination.

Any positive fitness determination rendered by the City of St. Louis pursuant to this chapter for a person required to be fingerprinted under Section 8.124.030.A of this chapter may be revoked by the City of St. Louis upon the City of St. Louis's subsequent receipt of a negative background check determination from the Missouri State Highway Patrol, CJIS Division. The revocation shall constitute a basis for termination of the fingerprinted person's employment, contract, or relationship with the City of St. Louis, subject to and in accordance with applicable City of St. Louis Civil Service Rules and Department of Personnel Administrative Regulations.
(Ord. No. 71868, § 5, 7-2-2024.)

Title 9

WEIGHTS AND MEASURES

Editor's Note:

The present ordinances and state statutes are based on the 1959 NIMLO Ordinance. These have not been revised to keep pace with national changes.

Charter:

Art. I § 1 (27) Inspection of articles of consumption or use

Art. I § 1 (28) Weights and Measures

RSMo:

RSMo Ch. 413 (2016) Weights and measures

Cases:

The legislature has the right to regulate weights and measures and to delegate that authority to municipal corporations. *Stegmann v. Weeke,* 279 Mo. 131, 214 S.W. 134 (1919).

McQuillin:

24.399 *et seq.* Weights and measurers

Chapters:

9.02 Definitions and General Provisions

9.04 Solid Fuel

9.06 Ice, Avoirdupois

9.08 Person Weigher Scales

9.10 Penalties

9.12 Division of Weights and Measures

9.14 Inspection of Scales and Measures

9.16 Commodities, Method Of Sale

9.18 Packages, Tolerances

9.20 Packages, Unit Price

9.22 Products and Commodities

9.24 Weighers

Chapter 9.02

DEFINITIONS AND GENERAL PROVISIONS

Sections:

9.02.010 Definitions.

9.02.020 Systems in use.

9.02.030 Special units of measures defined.

9.02.040 Fractional parts of units.

9.02.050 City standards.

9.02.060 Field standards and equipment.

9.02.070 Inspection—Generally.

9.02.080 Inspection—Refusal—Certificates.

9.02.090 Inspection—Devices enumerated.

9.02.100 Inspection—Tanks and meters.

9.02.110 Inspection—Commissioner's duties.

9.02.120 Inspection—Certificates—Suspension of Commissioner.

9.02.010 Definitions.

For the purpose of this chapter, the following words and terms are defined as follows:

A. "City" means City of St. Louis, Missouri.

B. "Commodity" means any article, raw material, manufactured products, foodstuffs, livestock or any other substance either solid or liquid.

C. "Person" means both the plural and singular, as the case demands, and includes individuals, partnerships, corporations, companies, societies, and associations.

D. "Sell" and "sale" mean barter and exchange.

E. "Solid fuel" means any anthracite, semi-anthracite or lignite coal, briquettes, coke, petroleum coke, carbonized coal, petroleum carbon or any other mined, manufactured, processed or patented fuel not sold by liquid or metered measure.

F. "Vehicle" means any wagon, cart, truck, tractor, trailer, semitrailer or automobile.

G. "Weight(s) and (or) measure(s)" mean all weights and measures of every kind, instruments and devices for weighing and measuring and any appliances and accessories associated with any or all such instruments and devices. (1948 C., Ch. 72, § 1; 1960 C., § 341.010; C. 1994, § 9.02.010; Ord. No. 50077, § 1(part), 1960.)

9.02.020 Systems in use.

The system of weights and measures in customary use in the United States and the metric system of weights and measures are jointly recognized, and one or the other of these systems shall be used for all commercial purposes in the City. The definitions of basic units of weights and measures, the tables of weights and measures, and weights and measures equivalents, as published by the National Bureau of Standards, and recognized by the State of Missouri, are recognized and shall govern weighing and measuring equipment and

transactions in the City. (1948 C., Ch. 72, § 2; 1960 C., § 341.020; C. 1994, § 9.02.020; Ord. No. 50077, § 1(part), 1960.)

9.02.030 Special units of measures defined.

"Barrel," when used in connection with fermented liquor shall mean a unit of thirty-one gallons. "Ton" means a unit of two thousand pounds avoirdupois weight. "Cord," when used in connection with wood intended for fuel purposes, means the amount of wood that is contained in a space of one hundred twenty-eight cubic feet, when the wood is ranked and well stowed and one-half the kerf of the wood is included. (1948 C., Ch. 72, § 3; 1960 C., § 341.030; C. 1994, § 9.02.030; Ord. No. 50077, § 1(part), 1960.)

9.02.040 Fractional parts of units.

Fractional parts of any unit of weight or measure mean like fractional parts of the value of the unit as prescribed or defined in Sections 9.02.020 and 9.02.030, and all contracts concerning the sale of commodities and services shall be in accordance with this requirement. (1948 C., Ch. 72, § 52; 1960 C., § 354.010; C. 1994, § 9.02.040; Ord. No. 50077, § 1(part), 1960.)

9.02.050 City standards.

There shall be supplied by the City weights and measures in conformity with the standards of the United States and the standards of the State of Missouri, and, when the same shall have been certified as such by the State of Missouri, these shall be the City standards of weights and measures. The City standards shall be kept in a safe and suitable place in the office or laboratory of the City Division of Weights and Measures. They shall not be removed from the office or laboratory except for repairs or for certification, and they shall be submitted at least once in each five years to the State of Missouri for certification. The City standards shall be used only in verifying the field standards and for scientific purposes. (1948 C., Ch. 72, § 4; 1960 C., § 341.040; C. 1994, § 9.02.050; Ord. No. 50077, § 1(part), 1960.)

9.02.060 Field standards and equipment.

In addition to the City standards provided for in Section 9.02.050, there shall be supplied by the City "field standards" and equipment as found necessary to carry out the provisions of this title. The field standards shall be verified upon their initial receipt and at least once each year thereafter by direct comparison with the City standards. (1948 C., Ch. 72, § 5; 1960 C., § 341.050; C. 1994, § 9.02.060; Ord. No. 50077, § 1(part), 1960.)

9.02.070 Inspection—Generally.

All weights and measures used in the manner prescribed in this title shall be subject to inspection, as provided in this chapter on or after the first Monday in January and a second or subsequent inspection on or after the first Monday in July of each year without regard to date of any preceding certificate, and no person shall conceal or attempt to conceal weights and measures. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); ; C. 1994, § 9.02.070; Ord. No. 50077, § 1(part), 1960.)

McQuillin:

24.401 Regulation, inspection and sealing

9.02.080 Inspection—Refusal—Certificates.

No person shall fail or refuse to have any instrument of weight or measurement in his possession or use examined, tested, corrected, or sealed when called upon for that purpose by the Commissioner, and no weight or measure shall be deemed inspected, tested or sealed until the owners thereof shall have paid for and obtained a proper certificate or certificates from the Commissioner. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); C. 1994, § 9.02.080; Ord. No. 50077, § 1(part), 1960.)

9.02.090 Inspection—Devices enumerated.

When not otherwise provided by law, the Commissioner shall have the power to inspect and test, to ascertain if they are correct, all weights and measures kept, offered, or exposed for sale. It shall be the duty of the Commissioner, twice in every year to inspect and test, to ascertain if they are correct, all weights and measures commercially used:

A. In determining the weight, measurement, or count of commodities or things sold, or offered or exposed for sale, on the basis of weight or of measure;

B. In computing the basic charge or payment for services rendered on the basis of weight or of measure; or

C. In determining weight or measurement when a charge is made for such determination. With respect to single service devices, that is, devices designed to be used commercially only once and to be then discarded, and with respect to devices uniformly mass produced, as by means of a mold or die, and not susceptible of individual adjustment, the inspection and testing of each individual device shall not be required and the inspecting and testing requirements of this chapter will be satisfied when inspections and tests are made on

representative sample lots of such devices. The larger lots of which such sample lots are representative shall be held to be correct or incorrect upon the basis of the results of the inspections and tests on the sample lots. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); C. 1994, § 9.02.090; Ord. No. 50077, § 1(part), 1960.)

9.02.100 Inspection—Tanks and meters.

With respect to the number of inspections to be made in every year, the provisions of Sections 9.02.070—9.02.110 shall not apply to stationary tanks or tanks mounted on vehicles when used as measures and of a volumetric capacity of more than one hundred gallons. Such tanks, when not equipped with meters, shall be inspected annually, and no inspection shall be required of such tanks when equipped with meters providing all deliveries are made through the meter. Nothing in this section shall exempt any such meter from inspection. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); C. 1994, § 9.02.100; Ord. No. 50077, § 1(part), 1960.)

9.02.110 Inspection—Commissioner's duties.

The Commissioner shall keep a record of all weighing and measuring devices inspected by him, specifying the date, place of inspection and the names of the persons for whom the inspection was made, and to deliver to the persons a certificate of their accuracy. He shall make a daily report of the amount of fees collected by him, and pay the same daily into the City Treasury, taking the treasurer's receipts in duplicate therefor, and filing one with the Comptroller. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); C. 1994, § 9.02.110; Ord. No. 50077, § 1(part), 1960.)

9.02.120 Inspection—Certificates—Suspension of Commissioner.

The Comptroller shall deliver to the Commissioner blank inspection certificates with the amount specified therein, charging him therewith, and he shall account for the same and his money collections in the same manner as other officers engaged in the collection of the City's revenue. The Commissioner shall deliver to each person from whom he receives a fee a certificate duly signed and authenticated, stating the article or articles inspected and the fee received therefor, and shall make a faithful return for the same as directed in Section 9.02.100. For any failure to comply with the provisions of Sections 9.02.090—9.02.110, he shall be immediately suspended by the Director of Public Safety, and the facts causing the suspension reported to the Board of Aldermen for their consideration. (1948 C., Ch. 72, § 10(part); 1960 C., § 341.060(part); C. 1994, § 9.02.120; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.04

SOLID FUEL

For business regulations, see Ch. 8.86.

Sections:

9.04.010 Sold in baskets.
9.04.020 Fuel wood sales.
9.04.030 Tolerances.
9.04.040 Fees for weighing—Charging improper fees, etc.—Penalty for violation.
9.04.050 Disposing of part of load—Altering certificate.
9.04.060 False certificate.
9.04.070 Articles not weighed at authorized scales.
9.04.080 Unweighed fuel.
9.04.090 Delivery hours.
9.04.100 Weighing empty vehicles.
9.04.110 Weighing loaded vehicles.

9.04.010 Sold in baskets.

In all cases where solid fuel is sold in baskets or other similar receptacles, the solid fuel shall be sold by net weight only. All baskets or other receptacles, whenever containing solid fuel for sale or delivery, shall be marked or labeled as to plainly show the net weight of the contents thereof. No person to whom this section applies, shall sell, or offer for sale, or have in his possession for the purpose of sale, solid fuel in baskets or other like receptacles which are not so marked as to plainly show the correct net weight of the contents thereof. (1948 C., Ch. 72, § 45(part); 1960 C., § 351.010; C. 1994, § 9.04.010; Ord. No. 50077, § 1(part), 1960.)

9.04.020 Fuel wood sales.

All wood for fuel purposes shall be sold or offered for sale by the cord or fractional part thereof, with the exception of kindling. When fuel wood is sold, it shall be accompanied by a bill of sale bearing the name and address of the seller, the name and address of the purchaser, and the quantity of wood contained in the delivery in terms of cords or fractional parts thereof. At the time of delivery, the bill of sale, signed by the seller,

shall be given to the purchaser specified thereon. (1948 C., Ch. 72, § 45(part); 1960 C., § 351.020; C. 1994, § 9.04.020; Ord. No. 50077, § 1(part), 1960.)

9.04.030 Tolerances.

On the reweighing of any load of solid fuel, or any empty solid fuel vehicle, on a scale different than that on which the load of solid fuel or empty vehicle was originally weighed, the following tolerances shall be permitted to cover variations in the tare weights of the vehicles used, and the natural variations between vehicle scales. The tolerance on the net weight shall be four pounds per thousand pounds with a maximum tolerance of one hundred pounds for one load, regardless of the size of the load weighed. The gross weight shall not be less than the weight represented, less the tolerance permitted for the net weight of the load. The tare weight shall not be more than forty pounds less than the true weight of the empty vehicle.

When the reweighing is done on the scale on which the load of solid fuel was originally weighed, the tolerance on the net weight shall be two pounds per thousand pounds with a maximum tolerance of sixty pounds for one load, regardless of the size of the load weighed. The gross weight shall not be less than the weight represented, less the tolerance permitted for the net weight of the load. The tare weight shall not be more than forty pounds less than the true weight of the empty vehicle. Under no circumstances are the tolerances established by this section to be used to short-weigh or as an excuse for short-weighing, but are permitted only to cover variations herein specified. (1948 C., Ch. 72, § 45; 1960 C., § 351.030; C. 1994, § 9.04.030; Ord. No. 50077, § 1(part), 1960.)

9.04.040 Fees for weighing—Charging improper fees, etc.—Penalty for violation.

A. Dealers in solid fuel shall be permitted to charge and receive a fee of four dollars or any less sum they may see fit to charge on any load of solid fuel weighed on their scales, except solid fuel in quantities of less than one thousand pounds. Owners or operators of private or public scales are authorized to charge and receive a fee of four dollars or any less sum they may see fit to charge for any load of solid fuel or other commodity or any article weighed on their scales; provided that the sum actually charged within the limits allowed by this section shall be uniform for each weighing and shall be in the case of every person who may have occasion to have any solid fuel or other commodity or article weighed.

B. No weigher in the City shall charge for weighing where no charge is authorized, or charge more than the maximum fees prescribed, or vary the charge fixed by the owner of the scale as the maximum charge.

C. No weigher shall be required to deliver his certificate of weighing until the fee, according to the tariff fixed, is paid. The maximum fee shall not exceed four dollars per weighing.

D. Any person, firm or corporation who shall violate the provisions of this section shall upon the conviction thereof be subject to the penalties provided in Section 9.10.040 of this Code. (1948 C., Ch. 72, § 46; 1960 C., § 351.040; C. 1994, § 9.04.040; Ord. No. 58529, §§ 1, 2, 1982; Ord. No. 57818, §§ 1, 2, 1979; Ord. No. 55190, § 1, 1968; Ord. No. 52951, § 1, 1965; Ord. No. 50561, § 1, 1961; Ord. No. 50077, § 1(part), 1960.)

9.04.050 Disposing of part of load—Altering certificate.

Any person in charge of a vehicle containing solid fuel, or any other commodity, that has been weighed upon any public scale or private scale having a legally bonded weigher in the City and received a certificate of the weight thereof who shall sell or dispose of a part thereof; and afterwards sell or offer to sell the remainder as for the quantity called for in his certificate, or who shall fail to deliver the entire amount called for on his certificate and afterwards sell, offer to sell or deliver the remainder to any person other than the consignee listed on the weight certificate, or who shall change, alter, or in any manner falsify the certificate of the weigher or shall perpetrate any fraud on the weigher or purchaser or shall suffer any of these things to be done, shall be guilty of a misdemeanor, and on conviction thereof shall be fined not less than one hundred dollars or more than five hundred dollars, or by imprisonment for not more than three months, or by both fine and imprisonment. (1948 C., Ch. 72, § 68; 1960 C., § 351.050; C. 1994, § 9.04.050; Ord. No. 50077, § 1(part), 1960.)

9.04.060 False certificate.

If any person sells or offers for sale or delivers a load of solid fuel or any other thing or article in the City under pretense of a weigher's certificate obtained under and by virtue of the weight of another and different load from the one he sells, or offers for sale, or delivers, shall be guilty of a misdemeanor, and upon

conviction thereof be fined not less than one hundred dollars or more than five hundred dollars, or by imprisonment for not more than three months, or by both fine and imprisonment. (1948 C., Ch. 72, § 69; 1960 C., § 351.060; C. 1994, § 9.04.060; Ord. No. 50077, § 1(part), 1960.)

9.04.070 Articles not weighed at authorized scales.

No person shall offer for sale or delivery or deliver any load of solid fuel, or any other commodity, except solid fuel in quantities less than one thousand pounds in any vehicle which has been weighed at scales not authorized to issue certificates of weight. (1948 C., Ch. 72, § 70; 1960 C., § 351.070; C. 1994, § 9.04.070; Ord. No. 50077, § 1(part), 1960.)

9.04.080 Unweighed fuel.

No person shall buy, sell or deliver in any vehicle any solid fuel, except solid fuel in quantities less than one thousand pounds, until the same has been weighed by one of the legally authorized weighers, and a certificate of the weight thereof given as required in the provisions of this chapter. (1948 C., Ch. 72, § 40; 1960 C., § 348.010; C. 1994, § 9.04.080; Ord. No. 50077, § 1(part), 1960.)

McQuillin:

24.406 Coal

9.04.090 Delivery hours.

No solid fuel shall be delivered by any vehicle in the City to a consumer before six a.m. or after seven p.m. standard time. It shall be prima facie evidence of a violation hereof for any loaded vehicle to be on the streets of the City after seven p.m., unless the driver of the vehicle can show that his vehicle left the licensed dealer's yard in sufficient time to complete the delivery before seven p.m., and that the delay was due to unavoidable causes. (1948 C., Ch. 72, § 41; 1960 C., § 349.010; C. 1994, § 9.04.090; Ord. No. 50077, § 1(part), 1960.)

9.04.100 Weighing empty vehicles.

It shall be the duty of all owners of vehicles that may be employed in bringing solid fuel to the City to have their vehicles weighed while empty at least once every week, and no bonded weigher shall issue his certificate for any vehicle upon which the date of its being weighed while empty is older than one week. It shall be the duty of every weigher to weigh the empty vehicle and to issue to the driver of the empty vehicle a certificate of weighing, crossing out the spaces for gross and net weights, which certificate shall be signed by the bonded weigher and signed by the driver of the empty vehicle acknowledging the correctness of the empty weight. The weight certificates so issued shall during the remainder of the following week be kept in the possession of the driver of the vehicle for which issued and shall be subject to call at any time by the Commissioner or his assistants and any variation over the tolerance established in Section 9.04.030 in the actual weight of the empty vehicle and the tare weight shown on the certificate shall be considered prima facie evidence that the tare weight was altered or changed by the owner or driver of the vehicle. It shall be the duty of the owner or driver of any vehicle, on which repairs or alterations have been made that might change the tare weight of the vehicle, to immediately after the work to have the vehicle reweighed and a certificate issued establishing the new tare weight. It shall be the duty of the owner or driver of all vehicles in hauling any other commodity, sold by weight, to have their respective empty vehicles weighed every day when in use. (1948 C., Ch. 72, § 62; 1960 C., § 350.010; C. 1994, § 9.04.100; Ord. No. 50077, § 1(part), 1960.)

9.04.110 Weighing loaded vehicles.

Vehicles, when used in hauling solid fuel, shall be weighed only on scales on which the vehicle while empty shall have been weighed within one week prior thereto, and no bonded weigher shall issue his certificate of weighing unless the vehicle used in the hauling shall have been weighed while empty on the scale operated by him within one week prior thereto. (1948 C., Ch. 72, § 63; 1960 C., § 350.020; C. 1994, § 9.04.110; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.06

ICE, AVOIRDUPOIS

Sections:

9.06.010 Block ice.
9.06.020 Crushed ice or ice cubes.

9.06.010 Block ice.

When block ice is sold from a self-service automatic vending device, there shall be posted, or displayed on the outside housing of the vending device, a plain and conspicuous declaration of the weight of the block of ice to be dispensed, together with the price. The letters and numerals in the weight declaration shall

be not less than three inches in height. (1948 C., Ch. 72, § 34(part); 1960 C., § 352.010(part); C. 1994, § 9.06.010; Ord. No. 50077, § 1(part), 1960.)

9.06.020 Crushed ice or ice cubes.

Crushed ice or ice cubes packed and sold in paper bags or other containers shall have printed or stamped in a conspicuous place on the outside of the bag or container a declaration of the net weight of the crushed ice or ice cubes contained in the bag or container, except, ice cubes in small cartons may be sold by count. (1948 C., Ch. 72, § 34(part); 1960 C., § 352.010(part); C. 1994, § 9.06.020; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.08

PERSON WEIGHER SCALES

Sections:

9.08.010 Regulations.

9.08.010 Regulations.

Any person weigher scales placed in public use for the weighing of persons shall be plainly and permanently labeled with the names and addresses of the owners thereof. Any person placing such scales in use shall furnish the Commissioner of Weights and Measures, during the months of January and July of each calendar year, a complete list of all person weigher scales together with the address of their location, serial number and name of manufacturer. Any person weigher scale or other device operated or in use in violation of this section shall be subject to condemnation, seizure and confiscation. (1948 C., Ch. 72, § 10; 1960 C., § 353.010; C. 1994, § 9.08.010; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.10

PENALTIES

Sections:

9.10.010 Hindering or obstructing officer.
9.10.020 Interfering with scales or weighers.
9.10.030 Impersonation of officer.
9.10.040 Offenses.

9.10.010 Hindering or obstructing officer.

Any person who shall hinder or obstruct in any way the Commissioner of Weights and Measures, his Deputy Commissioner, or any of his inspectors, in the performance of his official duties, shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than fifty dollars nor more than five hundred dollars, or by imprisonment for not more than three months, or by both fine and imprisonment. (1948 C., Ch. 72, § 71; 1960 C., § 355.010; C. 1994, § 9.10.010.; Ord. No. 50077, § 1(part), 1960.)

9.10.020 Interfering with scales or weighers.

No person shall interfere with a public scale or the weigher thereof in the discharge of his duty by demanding or exacting more weight of and for the article weighed than that which he declares it to be, or threaten or menace him, or use harsh or abusive language to him while in the discharge of his duty, or cause any noise in or about the office of the scale, or interfere with any person or persons who are about to have weighing done, or who have already done weighing at any public scales by menacing or otherwise abusing them therefor, or use unseemly, profane, obscene, or offensive language towards them. (1948 C., Ch. 72, § 71; 1960 C., § 355.020; C. 1994, § 9.10.020; Ord. No. 50077, § 1(part), 1960.)

9.10.030 Impersonation of officer.

Any person who shall impersonate in any way the Commissioner of Weights and Measures, his Deputy Commissioner, or any of his inspectors, by the use of his seal or a counterfeit of his seal, or in any other manner, shall be guilty of a misdemeanor, or upon conviction thereof shall be punished by a fine of not less than one hundred dollars or more than five hundred dollars, or by imprisonment for not more than one year, or by both fine and imprisonment. (1948 C., Ch. 72, § 21; 1960 C., § 355.030; C. 1994, § 9.10.030; Ord. No. 50077, § 1(part), 1960.)

9.10.040 Offenses.

Any person who, by himself or by his servant or agent, or as the servant or agent of another person, performs any of the acts enumerated in this section, shall be guilty of a misdemeanor and, upon a first conviction thereof, shall be punished by a fine of not less than twenty dollars or more than five hundred dollars, or by imprisonment for not more than three months, or by both fine and imprisonment; and upon a second or subsequent conviction thereof, he shall be punished by a fine or not less than fifty dollars or more than five hundred dollars, or by imprisonment for not more than one year, or by both fine and imprisonment.

No person shall:

A. Use or have in possession for the purpose of using for any commercial purpose specified in Sections 9.02.070—9.02.120 sell, offer, or expose for sale or hire, or have in possession for the purpose of selling or hiring, an incorrect weight or measure or any device or instrument used to or calculated to falsify any weight or measure;

B. Use, or have in possession for current use, in the buying or selling of any commodity or thing, or for hire or award, or in the computation of any basic charge or payment for services rendered on the basis of weight or measurement, or in the determination of weight or measurement when a charge is made for such determination, any weight or measure that has not been sealed by the Commissioner, his Deputy Commissioner, or one of his inspectors within six months, unless written notice has been given to the Commissioner, to the effect that the weight or measure is available for examination, or is due for re-examination, as the case may be, or unless specific written permission to use the weight or measure has been received from the office of the Commissioner;

C. Dispose of any rejected or condemned weight or measure in a manner contrary to law;

D. Remove from any weight or measure, contrary to law, any tag, seal, or mark placed thereon by the Commissioner, his Deputy Commissioner, or one of his inspectors;

E. Sell, or offer or expose for sale, less than the quantity he represents of any commodity, thing, or service;

F. Take more than the quantity he represents of any commodity, thing, or service when, as buyer, he furnishes the weight or measure by means of which the amount of the commodity, thing, or service is determined;

G. Keep for the purpose of sale, advertise, or offer or expose for sale, or sell, any commodity, thing, or service in a condition or manner contrary to law;

H. Use in retail trade, except in the preparation of packages put up in advance of sale and of medical prescriptions, a weight or measure that is not so positioned that its indications may be accurately read and the weighing or measuring operation observed from some position which may reasonably be assumed by a customer;

I. Violate any provision of this title for which a specific penalty has not been prescribed. (1948 C., Ch. 72, § 57; 1960 C., § 355.050; C. 1994, § 9.10.040; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.12

DIVISION OF WEIGHTS AND MEASURES

Sections:

9.12.010	**Commissioner—Deputy—Inspectors.**
9.12.020	**Bonds.**
9.12.030	**Commissioner—Powers and duties.**
9.12.040	**Official guide.**
9.12.050	**Deputy and inspectors—Powers and duties.**

9.12.010 Commissioner—Deputy—Inspectors.

There shall be a Commissioner of Weights and Measures, referred to in this title as the Commissioner. There shall be a Deputy Commissioner of Weights and Measures and City inspectors of weights and measures, referred to in this title as the Deputy Commissioner and inspectors, respectively, and necessary technical and clerical personnel, who shall be appointed by the Commissioner, with the approval of the Director of Public Safety, from eligible lists prepared by the civil service board and under the rules of said board, and who shall collectively comprise the City Division of Weights and Measures, of which the Commissioner shall be the head. The Commissioner shall be allowed for salaries for himself, the Deputy Commissioner, the inspectors, and the necessary technical and clerical employees, for necessary equipment and supplies, and for vehicles and contingent expenses, sums as appropriated by the Board of Aldermen. (1948 C., Ch. 72, § 1; 1960 C., § 340.010; C. 1994, § 9.12.010; Ord. No. 50077, § 1(part), 1960.)

9.12.020 Bonds.

A bond, with sureties, to be approved by the Comptroller, and conditioned upon the faithful performance of his duties and the safekeeping of any standards or equipment entrusted to his care, shall forthwith, upon his appointment, be given by the Commissioner in the sum of five thousand dollars, and by the Deputy Commissioner in the sum of five thousand dollars. The premiums on such bonds shall be paid by the City. (1948 C., Ch. 72, § 2; 1960 C., § 340.020; C. 1994, § 9.12.020; Ord. No. 50077, § 1(part), 1960.)

For bond, see also § 3.26.010.

9.12.030 Commissioner—Powers and duties.

The Commissioner shall have the custody of the City standards of weights and measures and of the other standards and equipment provided for by this title, and shall keep accurate records of the same. The Commissioner shall enforce the provisions of this title. He shall have and keep a general supervision over the weights and measures offered for sale, sold, or in use in the City. He shall annually make to the Director of Public Safety a report on all of the activities of his office. (1948 C., Ch. 72, § 8; 1960 C. 340.030; C. 1994, § 9.12.030; Ord. No. 50077, § 1(part), 1960.)

9.12.040 Official guide.

In order that there may be eliminated from use, without prejudice to apparatus that conforms as closely as practicable to the official standards, those weights, measures, weighing devices, or measuring devices:

A. That are not accurate;

B. That are of such construction that they are faulty; that is, that are not reasonably permanent in their adjustment or will not repeat their indications correctly; or

C. That facilitate the perpetration of fraud, the Commissioner shall use as his official guide in the enforcement of this title the specifications, tolerances, and regulations for commercial weighing and measuring devices, together with amendments thereto, as recommended by the National Bureau of Standards and published in National Bureau of Standards Handbook 44 and supplements thereto, or in any publication of the National Bureau of Standards revising or superseding Handbook 44, except insofar as these are specifically modified, amended, or rejected by action of the Board of Aldermen, and these specifications, tolerances, and regulations shall have the full force and effect of law. For the purposes of this title, apparatus shall be "correct" when it conforms to all applicable specifications, tolerances, and regulations; other apparatus shall be "incorrect." (1948 C., Ch. 72, § 9; 1960 C., § 340.040; C. 1994, § 9.12.040; Ord. No. 50077, § 1(part), 1960.)

9.12.050 Deputy and inspectors—Powers and duties.

The powers and duties given to and imposed upon the Commissioner by Sections 9.02.070—9.02.120, 9.12.040, and 9.14.010—9.14.090 are given to and imposed upon the Deputy Commissioner and inspectors also, when acting under the instructions and at the direction of the Commissioner. (1948 C., Ch. 72, § 17; 1960 C., § 340.050; C. 1994, § 9.12.050; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.14

INSPECTION OF SCALES AND MEASURES

Sections:

9.14.010 Fees.

9.14.020 Investigations.

9.14.030 Package inspection.

9.14.040 Stop use, stop removal, and removal orders.

9.14.050 Correct and incorrect apparatus—Seal—Seizures.

9.14.060 Incorrect apparatus—Hearing.

9.14.070 Incorrect apparatus—Destruction.

9.14.080 Incorrect apparatus—Decision review.

9.14.090 Commissioner's police powers.

9.14.100 Duty of owners.

9.14.010 Fees.

The Commissioner shall charge for inspecting, testing, sealing, and certifying the various types of weights and measures as required by this title, in accordance with the following schedule of fees:

Scale or balance with a nominal capacity of 50 pounds or less: $2.00.

Person weigher scale: $2.00.

Scale (other than as specified above) with nominal capacity of not more than 400 pounds: $3.00.

Scale with nominal capacity of more than 400 pounds but not more than 1,200 pounds: $4.00.

Scale with nominal capacity of more than 1,200 pounds but not more than 3,500 pounds: $5.00.

Scale with nominal capacity of more than 3,500 pounds but not more than 10,000 pounds: $7.50.

Scale (other than as specified below) with nominal capacity of more than 10,000 pounds: $12.50.

Livestock scale: $15.00.

Axleload scale: $15.00.

Vehicle scale with nominal capacity of 40,000 pounds or less: $17.50.

Vehicle scale with nominal capacity of more than 40,000 pounds: $20.00.

(Note: The fees scheduled above shall include inspection and testing of one set of weights normally supplied with each scale. Additional such weights shall be charged for at the rate of one dollar per set.)

Weights (other than those normally supplied with a particular scale) shall be charged, for each weight: $0.20.

Linear measure: $0.20.

Linear measuring device: $0.50.

Liquid or dry measure with capacity of one gallon or less: $0.10.

Liquid or dry measure with capacity of more than one gallon but not more than five gallons: $0.50.

Liquid or dry measure with capacity of more than five gallons, per gallon: $0.10.

Odometer: $3.00.

Liquid measuring device (retail type) not mounted on vehicle tank: $3.00.

Liquid measuring device (wholesale type) not mounted on vehicle tank: $15.00.

Liquid measuring device mounted on vehicle tank: $10.00.

Tank (whether stationary or mounted on a vehicle) when used as a measure of capacity:

100 gallons or more but less than 500 gallons: $20.00.

500 gallons or more but less than 1,000 gallons: $26.00.

1,000 gallons or more but less than 2,000 gallons: $32.00.

2,000 gallons or more but less than 3,000 gallons: $38.00.

3,000 gallons or more but less than 4,000 gallons: $44.00.

4,000 gallons or more but less than 5,000 gallons: $50.00.

5,000 gallons or more but less than 6,000 gallons: $56.00.

6,000 gallons or more but less than 7,000 gallons: $62.00.

7,000 gallons or more but less than 8,000 gallons: $68.00.

8,000 gallons or more but less than 9,000 gallons: $74.00.

9,000 gallons or more but less than 10,000 gallons: $80.00.

More than ten thousand gallons shall be charged at the rate of eighty dollars plus six dollars each additional one thousand gallons or fraction thereof above ten thousand gallons. (1948 C., Ch. 72, § 11; 1960 C., § 342.010; C. 1994, § 9.14.010; Ord. No. 55927, § 1, 1971; Ord. No. 55078, § 1, 1968; Ord. No. 50077, § 1(part), 1960.)

McQuillin:

24.403 Fee for weighing, measuring or inspection

9.14.020 Investigations.

The Commissioner shall investigate complaints made to him concerning violations of the provisions of this title, and shall, upon his own initiative, conduct investigations he deems appropriate and advisable to develop information on prevailing procedures in commercial quantity determination and on possible violations of the provisions of this title and to promote the general objective of accuracy in the determination and representation of quantity in commercial transactions. (1948 C., Ch. 72, § 12; 1960 C., § 342.020; C. 1994, § 9.14.020; Ord. No. 50077, § 1(part), 1960.)

9.14.030 Package inspection.

The Commissioner shall, from time to time, weigh or measure and inspect packages or amounts of commodities kept, offered, or exposed for sale, sold, or in the process of delivery, to determine whether the same contain the amounts represented and whether they be kept, offered, or exposed for sale, or sold, in accordance with law. When packages or amounts of commodities are found not to contain the amounts represented or are found to be kept, offered, or exposed for sale in violation of law, the Commissioner may order them off sale and may mark or stamp them as "illegal." No person shall:

A. Sell, or keep, offer, or expose for sale any package or amount of commodity that has been ordered off sale as provided in this section unless and until the package or amount of commodity has been brought into full compliance with legal requirements; or

B. Dispose of any package or amount of commodity that has been ordered off sale and that has not been brought into compliance with legal requirements, in any manner except with the specific approval of the Commissioner. (1948 C., Ch. 72, § 13; 1960 C., § 342.030; C. 1994, § 9.14.030; Ord. No. 50077, § 1(part), 1960.)

9.14.040 Stop use, stop removal, and removal orders.

The Commissioner shall have the power to issue stop use orders, stop removal orders, and removal orders, with respect to weights and measures being, or susceptible of being, commercially used, and to issue stop removal orders and removal orders with respect to packages or amount of commodities kept, offered, or exposed for sale, sold, or in process of delivery, whenever in the course of his enforcement of the provisions of this title he deems it necessary or expedient to issue such orders. No person shall use, remove from the premises specified, or fail to remove from the premises specified, any weight, measure, or package or amount of commodity contrary to the terms of a stop use order, stop removal order, or removal order issued under the authority of this section. (1948 C., Ch. 72, § 14; 1960 C., § 342.040; C. 1994, § 9.14.040; Ord. No. 50077, § 1(part), 1960.)

9.14.050 Correct and incorrect apparatus—Seal—Seizures.

The Commissioner shall approve for use and seal or mark with appropriate devices weights and measures he finds upon inspection and test to be "correct" as defined in Section 9.12.040, and shall reject and mark or tag as "rejected" such weights and measures as he finds, upon inspection or test, to be "incorrect" as defined in Section 9.12.040, but which in his best judgment are susceptible of satisfactory repair. The Commissioner, by written rule or order, may issue exemptions from the sealing or marking requirements of this section with respect to weights and measures of character or size that sealing or marking would be inappropriate, impracticable, or damaging to the apparatus in question, and sealing or marking shall not then be required with respect to weights and measures as may thus be exempted therefrom. The Commissioner shall condemn, and may seize and may destroy, weights and measures found to be incorrect that in his best judgment are not susceptible of satisfactory repair. Weights and measures that have been rejected may be confiscated and may be destroyed by the Commissioner if not corrected as required by Section 9.14.100 or if used or disposed of contrary to the requirements of Section 9.14.100. (1948 C., Ch. 72, § 15(part); 1960 C., § 342.050(part); C. 1994, § 9.14.050; Ord. No. 50077, § 1(part), 1960.)

9.14.060 Incorrect apparatus—Hearing.

Immediately after the seizing or confiscation of any weights, measures, or other instruments used for weighing or measuring, or after the seizing or confiscation of any package, or packages, commodity, or amounts of commodities, found to be used, retained, or offered or exposed for sale or sold in violation of this title, the Commissioner shall give the owner (of such scales, weights, measures, or other weighing devices, or of the package or commodity, or amounts of packages, or commodities found to be used, retained, or offered or exposed for sale or sold in violation of this title) or his agent or employee, at least ten days' written notice of the complaint or charge, and shall fix the date for the hearing on the complaint or charge upon which hearing the party summoned shall have the right to have counsel and produce witnesses in his behalf. For the purpose of the hearing, the Commissioner of Weights and Measures is empowered to issue subpoenas and all necessary processes, administer oath, and take testimony at the hearing. (1948 C., Ch. 72, § 15(part); 1960 C., § 342.050(part); C. 1994, § 9.14.060; Ord. No. 50077, § 1(part), 1960.)

9.14.070 Incorrect apparatus—Destruction.

If the Commissioner shall, after the hearing, decide that the scale, weight, measure, weighing or measuring device or package or commodity or other article so seized, was used or kept, in violation of any of the provisions of this title, he shall order the scale, weight, measure, weighing or measuring device or package, commodity or other article destroyed. If any such scale, weight, measure, weighing or measuring device, package, commodity or other article can be made to conform to the standards prescribed by the laws of the United States or of this state, the same shall be adjusted and sold at public auction and the proceeds shall be turned over by the Commissioner to the City Treasury. (1948 C., Ch. 72, § 15(part); 1960 C., § 342.050(part); C. 1994, § 9.14.070; Ord. No. 50077, § 1(part), 1960.)

9.14.080 Incorrect apparatus—Decision review.

The decision and action of the Commissioner thereon shall be reviewable in a court of competent jurisdiction by a writ of certiorari filed by the defendant so affected, within ten days after the decision. And no weights, measures, commodities or other articles shall be destroyed or sold at public auction, as provided herein, until final adjudication on the hearing. (1948 C., Ch. 72, § 15(part); 1960 C., § 342.050(part); C. 1994, § 9.14.080; Ord. No. 50077, § 1(part), 1960.)

9.14.090 Commissioner's police powers.

With respect to the enforcement of this title and any other ordinances dealing with weights and measures that he is, or may be, empowered to enforce, the Commissioner is vested with special police powers, and is authorized to arrest, without formal warrant, any violator of this title or any other ordinances, or when he has reasonable grounds to believe that a violation has occurred, and to seize for use as evidence, without formal warrant, incorrect or unsealed weights and measures or amounts or packages of commodity, found to be used, retained, offered or exposed for sale, or sold in violation of law. In the performance of his official duties, the Commissioner is authorized to enter and go into or upon, without formal warrant, any structure or premises, and to stop any person whatsoever and to require him to proceed, with or without any vehicle of which he may be in charge, to some place which the Commissioner may specify. (1948 C., Ch. 72, § 16; 1960 C., § 342.060; C. 1994, § 9.14.090; Ord. No. 50077, § 1(part), 1960.)

9.14.100 Duty of owners.

Weights and measures that have been rejected under the authority of the Commissioner shall remain subject to the control of the rejecting authority until such time as suitable repair or disposition thereof has been made as required by this section. The owners of rejected weights and measures shall cause the same to be made correct within ten days or such longer period as may be authorized by the rejecting authority; or, in lieu of this, may dispose of the same, but only in a manner specifically authorized by the rejecting authority. Weights and measures that have been rejected shall not again be used commercially until they have been officially re-examined and found to be correct or until specific written permission for such use is issued by the rejecting authority. (1948 C., Ch. 72, § 18; 1960 C., § 342.070; C. 1994, § 9.14.100; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.16

COMMODITIES, METHOD OF SALE

Sections:

9.16.010 Measures.

9.16.010 Measures.

Commodities in liquid form shall be sold only by liquid measure or by weight, and commodities not in liquid form shall be sold only by weight, by measure of length or area, or by count. Liquid commodities may be sold by weight and dry commodities may be sold by count only if such methods give accurate information as to the quantity of commodity sold. The provisions of this section shall not apply to:

A. Commodities when sold for immediate consumption on the premises where sold;

B. Vegetables when sold by the head or bunch;

C. Commodities when in package form or in containers standardized by Missouri State or by federal law;

D. Concrete aggregates, concrete mixtures, and loose solid materials such as earth, soil, gravel, crushed stone, and the like, when sold by cubic measure; or

E. Unprocessed vegetable and animal fertilizer when sold by cubic measure. (1948 C., Ch. 72, § 19; 1960 C., § 343.010; C. 1994, § 9.16.010; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.18

PACKAGES, TOLERANCES

McQuillin:

24.400 Specified measures and containers

Sections:

9.18.010 Declarations required.

9.18.020 Name of manufacturer, packer, or distributor.

9.18.030 Business address.

9.18.040 Principal place of business.

9.18.050 Quantity statement—Commodity only.

9.18.060 Quantity statement—Expression.

9.18.070 Quantity statement—Terms—Qualification.

9.18.080 Quantity statement—Terms—Defined.

9.18.090 Quantity statement—Supplement—Metric.

9.18.100 Quantity statement—Supplement—Numerical count.

9.18.110 Quantity statement—Supplement—Weight or measure.

9.18.120 Quantity statement—Fractions—General use.

9.18.130 Quantity statement—Fractions—Expression.

9.18.140 Quantity statement—Fractions—Custom.
9.18.150 Quantity statement—Minimum or actual quantity.
9.18.160 Quantity statement—Variations—Declared minimum quantity.
9.18.170 Quantity statement—Variations—Declared actual quantity.
9.18.180 Quantity statement—Variations—Tolerances.
9.18.190 Quantity statement—Exemptions.
9.18.200 Name and address exemptions.
9.18.210 Prominence of declarations and statements.
9.18.220 Language.

9.18.010 Declarations required.

Except as otherwise provided in this title, any commodity in package form shall bear on the outside of the package a definite, plain, and conspicuous declaration of:

A. The net quantity of the contents in terms of weight, measure, or count; and

B. In the case of any package not sold on the premises where packed, the name and place of business of the manufacturer, packer, or distributor. The qualifying term "when packed," or words of similar import, shall not be used in connection with the declaration required under Subsection A. (1948 C., Ch. 72, § 20(part); 1960 C., § 344.010; C. 1994, § 9.18.010; Ord. No. 50077, § 1(part), 1960.)

9.18.020 Name of manufacturer, packer, or distributor.

If a commodity is not manufactured by the person whose name appears on the label, the name shall be qualified by a phrase that reveals the connection the person has with the commodity, such as "manufactured for and packed by _____," "distributed by _____," or other similar phrase that expresses the facts. (1948 C., Ch. 72, § 20(A); 1960 C., § 344.020; C. 1994, § 9.18.020; Ord. No. 50077, § 1(part), 1960.)

For exemption, see § 9.18.200.

9.18.030 Business address.

The statement of the place of business shall include the street address, if any, of the place, unless the street address is shown in a current City directory or telephone directory. (1948 C., Ch. 72, § 20(B); 1960 C., § 344.030; C. 1994, § 9.18.030; Ord. No. 50077, § 1(part), 1960.)

For exemption, see § 9.18.200.

9.18.040 Principal place of business.

Where a person manufactures, packs, or distributes a commodity at a place other than his principal place of business, the label may state the principal place of business in lieu of the actual place where each package or commodity was manufactured or packed or is to be distributed, if the statement is not misleading in any particular. (1948 C., Ch. 72, § 20(C); 1960 C., § 344.040; C. 1994, § 9.18.040; Ord. No. 50077, § 1(part), 1960.)

9.18.050 Quantity statement—Commodity only.

The statement of the quantity of the contents shall reveal the quantity of commodity in the package, exclusive of wrappers and other material packed with the commodity, and the qualifying term "when packed," and words of similar import, shall not be used in connection with the statement of quantity. (1948 C., Ch. 72, § 20(D, a); 1960 C., § 344.050(a); C. 1994, § 9.18.050; Ord. No. 50077, § 1(part), 1960.)

9.18.060 Quantity statement—Expression.

The statement shall be expressed in the terms of weight, measure, numerical count, or a combination of numerical count and weight, or measure, that are generally used by consumers and users to express quantity of the commodity and that give accurate information as to the quantity thereof. But if no general consumer usage in expressing accurate information as to the quantity of the commodity exists, the statement shall be in terms of liquid measure if the commodity is liquid, or in terms of weight if the commodity is solid, semi-solid, viscous, or a mixture of solid and liquid. The statement may be in terms of dry measure if the commodity is a fresh fruit, fresh vegetable, or other dry commodity. The quantity of textile materials shall be stated in terms of linear measure, except that, in the case of a commodity in respect to which there exists a definite trade custom otherwise, the statement may be in terms of weight and in accordance with such custom. (1948 C., Ch. 72, § 20(D, b); 1960 C., § 344.050(b); C. 1994, § 9.18.060; Ord. No. 50077, § 1(part), 1960.)

9.18.070 Quantity statement—Terms—Qualification.

When any term common to two or more systems of weight or measure is employed in the quantity state-

ment, the statement shall include the proper qualification of the term, as, for examples, "avoirdupois ounces" and "fluid ounces"; "liquid pints" and "dry pints"; "liquid quarts" and "dry quarts." (1948 C., Ch. 72, § 20(D, c); 1960 C., § 344.050(c); C. 1994, § 9.18.070; Ord. No. 50077, § 1(part), 1960.)

9.18.080 Quantity statement—Terms—Defined.

A statement of weight shall be in terms of the avoirdupois pound and ounce. A statement of linear measure shall be in terms of the standard yard and foot and inch subdivisions thereof. A statement of liquid measure shall be in terms of the United States gallon of two hundred thirty-one cubic inches and quart, pint, and fluid ounce subdivisions thereof, and, except in case of a frozen commodity which is so consumed, shall express the volume at sixty-eight degrees Fahrenheit (twenty degrees Centigrade). A statement of dry measure shall be in terms of the United States bushel of 2,150.42 cubic inches and peck, dry quart, and dry pint subdivisions thereof; or in terms of the United States standard barrel for fruits and vegetables (except cranberries) and its subdivisions of third, half, and three-quarters barrel; or in terms of the United States standard barrel for cranberries, and subdivisions thereof. However, in the case of an export shipment, the statement may be in terms of a system of weight or measure in common use in the country to which such shipment is exported. In the case of drugs, the statement may, as an alternative, be in terms of the kilogram, gram, milligram, liter, and milliliter or cubic centimeter. (1948 C., Ch. 72, § 20(E part); 1960 C., § 344.060(part); C. 1994, § 9.18.080; Ord. No. 50077, § 1(part), 1960.)

9.18.090 Quantity statement—Supplement—Metric.

A statement of weight or measure in the terms specified in Section 9.18.080 may be supplemented by a statement in terms of the metric system of weight or measure. (1948 C., Ch. 72, § 20(E, b); 1960 C., § 344.060(b); C. 1994, § 9.18.090; Ord. No. 50077, § 1(part), 1960.)

9.18.100 Quantity statement—Supplement—Numerical count.

Unless an unqualified statement of numerical count gives accurate information as to the quantity of commodity in the package, it shall be supplemented by a statement of weight, measure, or size of the individual units of the commodity as will give such information. (1948 C., Ch. 72, § 20(E, c); 1960 C., § 344.060(c); C. 1994, § 9.18.100; Ord. No. 50077, § 1(part), 1960.)

9.18.110 Quantity statement—Supplement—Weight or measure.

Unless an unqualified statement of weight or measure gives accurate information as to the quantity of the contents in the package, it shall be supplemented by a statement of count or size of the individual units of the commodity as will give such information. (1948 C., Ch. 72, § 20(E, d); 1960 C., § 344.060(d); C. 1994, § 9.18.110; Ord. No. 50077, § 1(part), 1960.)

9.18.120 Quantity statement—Fractions—General use.

Statements shall contain only fractions as are generally used in expressing the quantity of the commodity. A common fraction shall be reduced to its lowest terms. A decimal fraction shall not be carried out to more than two places, except in the case of drugs. (1948 C., Ch. 72, § 20(F); 1960 C., § 344.070; C. 1994, § 9.18.120; Ord. No. 50077, § 1(part), 1960.)

9.18.130 Quantity statement—Fractions—Expression.

If the quantity of commodity in the package equals or exceeds the smallest unit of weight or measure that is specified in Sections 9.18.080—9.18.110, and that is applicable to such commodity under the provisions of Section 9.18.060, the statement shall express the number of the largest of such units contained in the package (for example, the statement on the label of a package that contains one quart liquid of commodity shall be "one quart liquid," and not "two pints liquid" or "thirty-two fluid ounces") unless the statement is made in accordance with the provisions of Section 9.18.140. Where such number is a whole number and a fraction, there may be substituted for the fraction its equivalent in smaller units, if any smaller unit is specified in Sections 9.18.080—9.18.110 (for examples, one and three-quarters quarts liquid may be expressed as "one quart one and one-half pints liquid" or "one quart one pint eight fluid ounces"; one and one-quarter pounds may be expressed as "one pound four ounces"). The stated number of any unit that is smaller than the largest unit (specified in Sections 9.18.080—9.18.110) contained in the package shall not equal or exceed the number of such smaller units in the next larger unit so specified (for examples, instead of "one quart sixteen fluid ounces"

the statement shall be "one and one-half quarts liquid" or "one quart one pint liquid"; instead of "twenty-four ounces avoirdupois" the statement shall be "one and one-half pounds" or "one pound eight ounces"). (1948 C., Ch. 72, § 20(G, a); 1960 C., § 344.080(a); C. 1994, § 9.18.130; Ord. No. 50077, § 1(part), 1960.)

9.18.140 Quantity statement—Fractions—Custom.

In the case of a commodity with respect to which there exists an established custom of stating the quantity of the contents as a fraction of a unit, which unit is larger than the quantity contained in the package, or as units smaller than the largest unit contained therein, the statement may be made in accordance with such custom if it is informative to consumers. (1948 C., Ch. 72, § 20(G, b); 1960 C., § 344.080(b); C. 1994, § 9.18.140; Ord. No. 50077, § 1(part), 1960.)

9.18.150 Quantity statement—Minimum or actual quantity.

The statement shall express the minimum quantity, or the actual quantity, of the contents of the package. If the statement is not so qualified as to show definitely that the quantity expressed is the minimum quantity, the statement shall be construed as expressing the actual quantity of the contents of the package. (1948 C., Ch. 72, § 20(H); 1960 C., § 344.090; C. 1994, § 9.18.150; Ord. No. 50077, § 1(part), 1960.)

9.18.160 Quantity statement—Variations—Declared minimum quantity.

Where the statement expresses the minimum quantity, no variation below the stated minimum shall be permitted except variations below the stated weight or measure caused by ordinary and customary exposure, after the commodity is sold and delivered by the manufacturer, packer, or distributor, to conditions that normally occur in good distribution practice and that unavoidably result in decreased weight or measure. Variations above the stated minimum shall not be unreasonably large. (1948 C., Ch. 72, § 20(I); 1960 C., § 344.100; C. 1994, § 9.18.160; Ord. No. 50077, § 1(part), 1960.)

9.18.170 Quantity statement—Variations—Declared actual quantity.

Where the statement does not express the minimum quantity:

A. Variations from the stated weight or measure shall be permitted when caused by ordinary and customary exposure, after the commodity is sold and delivered by the manufacturer, packer, or distributor, to conditions that normally occur in good distribution practice and that unavoidably result in change of weight or measure.

B. Variations from the stated weight, measure, or numerical count shall be permitted when caused by unavoidable deviations in weighing, measuring, or counting the contents of individual packages that occur in good packing practice; but such variations shall not be permitted to the extent that the average of the quantities in the packages of a particular commodity comprising either a shipment or other delivery of the commodity or a lot of the commodity that is kept, offered, or exposed for sale, or sold, is below the quantity stated, and no unreasonable shortage in any package shall be permitted, even though overages in other packages in the same shipment, delivery, or lot compensate for such shortages. (1948 C., Ch. 72, § 20(J); 1960 C., § 344.110; C. 1994, § 9.18.170; Ord. No. 50077, § 1(part), 1960.)

9.18.180 Quantity statement—Variations—Tolerances.

The extent of variations from the stated quantity of the contents permissible under Sections 9.18.160 and 9.18.170 in the case of each shipment, delivery, or lot shall be determined by the facts in such case. (1948 C., Ch. 72, § 20(K); 1960 C., § 344.120; C. 1994, § 9.18.180; Ord. No. 50077, § 1(part), 1960.)

9.18.190 Quantity statement—Exemptions.

A package shall be exempt from the requirement that it be marked with a statement of the quantity of its contents if:

A. The quantity of the contents, as expressed in terms applicable to such commodity, except in the case of a drug or cosmetic, under the provisions of Section 9.18.060 is less than one-half ounce avoirdupois, or less than one-half fluid ounce, or (in case the unit of the commodity can be easily counted without opening the package) less than six units. A drug shall be exempt from compliance with these requirements if the quantity of the contents of the package, as expressed in terms of numerical count in compliance with Section 9.18.060, is less than six units, and such units can be easily counted without opening the package. A cosmetic shall be exempt from compliance with these requirements if the quantity of the contents of the package, as expressed in terms applicable to such cosmetic under the provisions of Section 9.18.060, is less than

one-fourth ounce avoirdupois, or less than one-eighth fluid ounce, or (in case the units of the cosmetic can be easily counted without opening the package) less than six units; or

B. The statement of the quantity of the contents of the package, together with all other information required by law to appear on the label, cannot, because of insufficient label space, be so placed on the label as to comply with such requirements. (1948 C., Ch. 72, § 20(L); 1960 C., § 344.122; C. 1994, § 9.18.190; Ord. No. 50077, § 1(part), 1960.)

9.18.200 Name and address exemptions.

A package shall be exempt from the requirement that it be marked with a statement of the name and place of business of the manufacturer, packer, or distributor if the package is sold on the premises where packed, direct to the consumer or user, not to be resold. (1948 C., Ch. 72, § 20(M); 1960 C., § 344.125; C. 1994, § 9.18.200; Ord. No. 50077, § 1(part), 1960.)

9.18.210 Prominence of declarations and statements.

Information required to appear on the label of a package may be considered to lack the requisite definiteness, plainness, and conspicuousness by reason, among other reasons, of:

A. The failure of information to appear on the part or panel of the label that is presented or displayed under customary conditions of purchase;

B. The failure of information to appear on two or more parts or panels of the label, each of which has sufficient space therefor, and each of which is so designed as to render it likely to be, under customary conditions of purchase, the part or panel displayed;

C. The failure of the label to extend over the area of the container or package available for extension, so as to provide sufficient label space for the prominent placing of information;

D. Insufficiency of label space (for the prominent placing of information) resulting from the use of label space for any word, statement, design, or device that is not required by or under authority of ordinance to appear on the label;

E. Insufficiency of label space (for the prominent placing of information) resulting from the use of label space to give materially greater conspicuousness to any other word, statement, or information, or to any design or device;

F. Smallness or style of type in which information appears, insufficient background contrast, obscuring designs or vignettes, or crowding with other written, printed, or graphic matter; or

G. The use of label space for any representation in a foreign language. (1948 C., Ch. 72, § 20(N); 1960 C., § 344.130; C. 1994, § 9.18.210; Ord. No. 50077, § 1(part), 1960.)

9.18.220 Language.

All information required by or under authority of ordinance to appear on the label or labeling shall appear thereon in the English language. (1948 C., Ch. 72, § 20(N); 1960 C., § 344.140; C. 1994, § 9.18.220; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.20

PACKAGES, UNIT PRICE

Sections:

9.20.010 Random packages.
9.20.020 Misleading packages.
9.20.030 Commodity in package form defined.

9.20.010 Random packages.

In addition to the declarations required by Chapter 9.18, any commodity in package form, the package being one of a lot containing random weights, measures, or counts of the same commodity and bearing the total selling price of the package, shall bear on the outside of the package a plain and conspicuous declaration of the price per single unit of weight, measure, or count. (1948 C., Ch. 72, § 21; 1960 C., § 345.010; C. 1994, § 9.20.010; Ord. No. 50077, § 1(part), 1960.)

9.20.020 Misleading packages.

No commodity in package form shall be wrapped, nor shall it be in a container made, formed, or filled, to mislead the purchaser as to the quantity of the contents of the package, and the contents of a container shall not fall below the reasonable standard of fill as may have been prescribed for the commodity in question by state law or regulation. (1948 C., Ch. 72, § 22; 1960 C. 345.020; C. 1994, § 9.20.020; Ord. No. 50066, § 1(part), 1960.)

9.20.030 Commodity in package form defined.

The term "in package form" as used in this title means commodity put up or packaged in any manner in advance of sale in units suitable for either wholesale or retail sale, exclusive, however, of an auxiliary ship-

ping container enclosing packages that individually conform to the requirements of this title. An individual item or lot of any commodity not in package form as defined in this section, but on which there is marked a selling price based on an established price per unit of weight or of measure, shall be construed to be commodity in package form. (1948 C., Ch. 72, § 23; 1960 C., § 345.030; C. 1994, § 9.20.030; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.22

PRODUCTS AND COMMODITIES

Sections:

9.22.010 **Sale by net weight or measure.**

9.22.020 **Misrepresentation of price.**

9.22.030 **Meat, meat products, fish, poultry and wild game.**

9.22.040 **Bread.**

9.22.050 **Butter, oleomargarine, and margarine.**

9.22.060 **Fluid dairy products.**

9.22.070 **Flour, corn meal, and hominy grits.**

9.22.080 **Textile products.**

9.22.090 **Berries and small fruits.**

9.22.010 Sale by net weight or measure.

The words "weight or measure" as used in this title in connection with any commodity mean net weight or net measure. Whenever any commodity is sold, offered for sale, or advertised for sale on the basis of weight or measure, the net weight or net measure of the commodity shall be employed, and all contracts concerning commodities shall be so construed.

Weight or measure statements of the quantity of the commodity sold, offered for sale or advertised for sale shall express the number of the largest of such units as contained in such commodity (for example a liquid commodity of one quart shall be "one quart liquid," and not "two pints liquid" or "thirty-two fluid ounces." Where the number is a whole number and a fraction there may be substituted for the fraction its equivalent in smaller units (for examples, one and three-quarter quarts liquid may be expressed as "one quart one and one-half pints liquid" or "one quart one pint eight fluid ounces"; one and one-quarter pounds may be expressed as "one pound four ounces"). The stated number of any unit that is smaller than the largest unit contained in such commodity shall not equal or exceed the number of such smaller units in the next larger unit (for examples, instead of "one quart sixteen fluid ounces" the statement shall be "one and one-half quarts liquid" or "one quart one pint liquid"; instead of "twenty-four ounces avoirdupois" the statement shall be "one and one-half pounds" or "one pound eight ounces"). (1948 C., Ch. 72, § 24; 1960 C., § 346.010; C. 1994, § 9.22.010; Ord. No. 50077, § 1(part), 1960.)

9.22.020 Misrepresentation of price.

Whenever any commodity or service is sold, or is offered, exposed, or advertised for sale, by weight, measure, or count, the price shall not be misrepresented, nor shall the price be represented in any manner calculated or tending to mislead or deceive an actual or prospective purchaser. (1948 C., Ch. 72, § 25; 1960 C., § 346.020; C. 1994, § 9.22.020; Ord. No. 50077, § 1(part), 1960.)

9.22.030 Meat, meat products, fish, poultry and wild game.

All meat, meat products, fish, poultry and wild game, offered or exposed for sale or sold as food, shall be offered and exposed for sale by avoirdupois weight, and shall be weighed at time of sale. This section shall not apply:

A. When any of the items mentioned in this section are for immediate consumption on the premises where sold, or as one of several elements comprising a meal sold as a unit for consumption elsewhere than on the premises where sold;

B. When items are prepacked in packages of equal weight that comply with Chapter 9.18;

C. When items are prepacked in packages of random weights that comply with Section 9.20.010. (1948 C., Ch. 72, § 26; 1960 C., § 346.030; C. 1994, § 9.22.030; Ord. No. 50077, § 1(part), 1960.)

Ops. Atty. Gen.:

Sale of fried chicken, except for immediate consumption, by number of pieces rather than by weight for a specified price, violates RSMo 413.275. No. 276, August 12, 1964.

A hamburger or meat sandwich may be considered a ready-to-eat meal sold as a unit, and not required to be sold by weight. No. 380, December 4, 1964.

9.22.040 Bread.

Each loaf of bread and each unit of a twin or multiple loaf of bread, made or procured for sale, kept, offered, exposed for sale, or sold, whether or not the bread is wrapped or sliced, shall weigh one-half pound,

one pound, one and one-half pounds, or a multiple of one pound, avoirdupois weight, within reasonable variations or tolerances that, by statute or regulation, have been established by the State of Missouri. The provisions of this section shall not apply to biscuits, buns, or rolls weighing four ounces or less, or to "stale bread" sold and expressly represented at the time of sale as such, and that the marking provisions of Chapter 9.18 shall not apply to unwrapped loaves of bread. (1948 C., Ch. 72, § 27; 1960 C., § 346.040; C. 1994, § 9.22.040; Ord. No. 50077, § 1(part), 1960.)

McQuillin:

24.409 Bread

9.22.050 Butter, oleomargarine, and margarine.

Butter, oleomargarine, and margarine shall be offered and exposed for sale and sold by weight, and when in package form these commodities shall be packaged only in units of one-quarter pound, one-half pound, one pound, or multiples of one pound, avoirdupois weight. (1948 C., Ch. 72, § 28; 1960 C., § 346.050; C. 1994, § 9.22.050; Ord. No. 50077, § 1(part), 1960.)

9.22.060 Fluid dairy products.

All fluid dairy products, including, but not limited to, whole milk, skimmed milk, cultured milk, sweet cream, sour cream, and buttermilk, shall be packaged for retail sale only in units of one gill, one-half liquid pint, one liquid pint, one liquid quart, one-half gallon, one gallon, or multiples of one gallon. (1948 C., Ch. 72, § 29; 1960 C., § 346.060; C. 1994, § 9.22.060; Ord. No. 50077, § 1(part), 1960.)

9.22.070 Flour, corn meal, and hominy grits.

When in package form, and when packed, kept, offered, or exposed for sale, or sold, wheat flour, whole wheat flour, graham flour, self-rising wheat flour, phosphated wheat flour, bromated flour, enriched flour, enriched self-rising flour, enriched bromated flour, corn flour, corn meal, and hominy grits shall be packaged only in units of three, five, ten, twenty-five, fifty, or one hundred pounds, avoirdupois weight; provided, that packages in units of less than three pounds or more than one hundred pounds shall be permitted. (1948 C., Ch. 72, § 30; 1960 C., § 346.070; C. 1994, § 9.22.070; Ord. No. 50077, § 1(part), 1960.)

9.22.080 Textile products.

It is unlawful to keep for the purpose of sale, offer or expose for sale, or sell any textile yard goods put up or packaged in advance of sale in a bolt or roll, or any other textile product put up or packaged in advance of sale in any other unit, for either wholesale or retail sale, unless the bolt or roll, or the other unit, be definitely, plainly, and conspicuously marked to show its net measure in terms of yards or its net weight in terms of avoirdupois pounds or ounces, subject, however, to the following limitations and requirements:

A. Any unit of twine or cordage may be marked to show its net measure in terms of feet. Ready-wound bobbins that are not sold separately shall not be required to be individually marked, but the package containing the bobbins shall be marked to show the number of bobbins contained therein and the net weight or measure of the thread on each bobbin. Any unit of sewing, basting, mending, darning, crocheting, tatting, hand-knitting, or embroidery thread or yarn except nylon hand-knitting yarn that is not composed in whole or in part of wool, the net weight of which is less than two ounces avoirdupois, shall be marked to show its net measure in terms of yards as unwound from the ball or from the spool or other holder. Any retail unit of a textile product, sold only for household use, consisting of a package containing two or more similar individual units that are not sold separately, shall be marked to show the number of individual units in the package and the net weight or net measure of the product in each individual unit, but this proviso shall not apply where the individual units are separately marked. Any unit of yarn, composed in whole or in part of wool sold to consumers for handiwork, shall be marked to show the net weight of the yarn except that any unit of tapestry, mending, or embroidery yarn, the net measure of which does not exceed fifty yards, may be marked to show its linear measure only.

B. The marking required by this section shall in all cases be in combination with the name and place of business of the manufacturer, packer, or distributor of the product, or a trademark, symbol, brand, or other mark that positively identifies the manufacturer, packer, or distributor.

C. A tolerance of three percent, based on a test of an average of not less than ten units of the same type and put-up, to be selected at random, shall be permitted.

D. The provisions of this section shall not apply to the following textile products when sold at wholesale in bulk by net weights: Cordage, agricultural bag sewing threads, twines, yarns that are to be processed, and yarns that are to be industrially converted into end-use

products. (1948 C., Ch. 72, § 31; 1960 C., § 346.080; C. 1994, § 9.22.080; Ord. No. 50077, § 1(part), 1960.)

9.22.090 Berries and small fruits.

Berries and small fruits shall be offered and exposed for sale and sold by weight, or by measure in open containers having capacities of one-half dry pint, one dry pint, or one dry quart. The marking provisions of Chapter 9.18 shall not apply to such containers. (1948 C., Ch. 72, § 32; 1960 C., § 346.090; C. 1994, § 9.22.090; Ord. No. 50077, § 1(part), 1960.)

Chapter 9.24

WEIGHERS

Sections:

9.24.010 Bond—Qualifications—Revocation.

9.24.020 Written statement—Ownership—Surety.

9.24.030 Written statement—Contents.

9.24.040 Acting as weigher at scales not named in bond.

9.24.050 Duty.

9.24.060 Blank weight certificates.

9.24.070 Breaches of bond.

9.24.080 Forfeiture of position.

9.24.090 Gross and tare weights and net weight of delivered commodity.

9.24.100 Compliance when weighing vehicles—Vehicle defined.

9.24.010 Bond—Qualifications—Revocation.

Any person appointed to do public weighing shall be of good moral character, and must have the ability to weigh accurately and to issue correct weight certificates in legible handwriting. Before entering upon their duties, weighers must file with the Commissioner a surety bond in the amount of one thousand dollars conditioned for the faithful and honest performance of their duties. The bond shall be given for the benefit of the City, and anyone who may suffer loss by reason of a default in the condition of the bond. The Commissioner shall have the right to revoke the appointment of a bonded weigher because of incompetency or unsuitability to discharge his duties. (1948 C., Ch. 72, § 33(part); 1960 C., § 347.010(part); C. 1994, § 9.24.010; Ord. No. 50077, § 1(part), 1960.)

9.24.020 Written statement—Ownership—Surety.

The scale operator or owner shall file with the City Register a written statement, verified by his affidavit, giving the ownership of the scale, (whether individual, firm or corporation) together with the name of the surety on the weighers bond. (1948 C., Ch. 72, § 33(part); 1960 C., § 347.010(part); C. 1994, § 9.24.020; Ord. No. 50077, § 1(part), 1960.)

9.24.030 Written statement—Contents.

Before any person shall be sworn in by the City Register to act as a bonded weigher the owner or operator of the scales shall file a statement with the City Register, giving the name of the weigher appointed; the location of the scales covered by the bond of the weigher, which statement shall be approved by the Commissioner. (1948 C., Ch. 72, § 33(part); 1960 C., § 347.010(part); C. 1994, § 9.24.030; Ord. No. 50077, § 1(part), 1960.)

9.24.040 Acting as weigher at scales not named in bond.

No person shall act as weigher and issue certificates of weighing at scales not named in his bond filed with the City. (1948 C., Ch. 72, § 34; 1960 C., § 347.020; C. 1994, § 9.24.040; Ord. No. 50077, § 1(part), 1960.)

9.24.050 Duty.

It shall be the duty of every weigher appointed under this chapter to attend to the office of the public, or private scales for which he is appointed, and to weigh every load of solid fuel, or any other commodity, which may be presented to be weighed and to give to the person presenting same a certificate of the gross, tare, and net weight thereof. (1948 C., Ch. 72, § 35; 1960 C., § 347.030; C. 1994, § 9.24.050; Ord. No. 50077, § 1(part), 1960.)

9.24.060 Blank weight certificates.

The Comptroller shall furnish the Commissioner certificates in blank, signed by the Register and countersigned by the Comptroller for the use of all bonded weighers at authorized scales, who have been or may be appointed with the approval of the Commissioner, and who have filed a bond in the sum of one thousand dollars. The certificates so issued and furnished authorized scales shall be printed in quadruplicate, the original in green, the duplicate in white, the triplicate in pink and the quadruplicate in yellow, for all weights and loads of solid fuel, or other commodities weighed.

All the certificates and copies for solid fuel shall show the solid fuel permit number provided for in Chapter 8.86, and the origin of the solid fuel, (mine number), the time of the weighing thereof, and shall show the true gross, tare and net weights, and shall also state the name and address of the purchaser, the seller's name and address, and such other reasonable information as the Commissioner may from time to time direct, and shall correctly describe the quality, kind, and size of the solid fuel, or the character of the commodity weighed. These certificates shall be signed and not stamped by the bonded weigher, who shall turn over the original and duplicate fully filled out to the driver or person in charge of the load, and the driver or person shall, on delivery of the load, deliver the original ticket to the purchaser or his agent, and return the duplicate properly signed by the purchaser or his agent, to the seller. The triplicate copy shall be retained by the weigher for his records and neither the triplicate or quadruplicate copy is to be reviewed by anyone who is not a public official, or the persons primarily interested in the commodity listed on the weight certificate. The quadruplicate copy shall be retained by the weigher, and at the end of each month shall be, unless otherwise ordered by the Commissioner, returned or mailed to the Commissioner of Weights and Measures. If any original or duplicate certificate signed by the bonded weigher shall be found in the possession of the driver or the person in charge of a load or delivered by such person to the purchaser, it shall be considered prima facie evidence that the certificate was issued and delivered by the bonded weigher. On the back of every original ticket shall be printed the words: "The weigher of this scale has filed a bond with the City Register." The Commissioner of Weights and Measures shall furnish the weighers at private scales certificates at the rate of ten dollars per hundred.

No certificates except those furnished by the Commissioner shall be issued by any person weighing at a public or private scale. Each weigher shall furnish a separate set of certificates for each and every load weighed and only on the kind of blank provided by this section.

No weigher shall sell or dispose of any blank certificate received from the Commissioner, except for loads actually weighed on his scales. The books kept by the weigher shall at all times be open to the inspection of the Commissioner. (1948 C., Ch. 72, § 36; 1960 C., § 347.040; C. 1994, § 9.24.060; Ord. No. 55928, § 1, 1971; Ord. No. 50077, § 36, 1960.)

McQuillin:

24.404 Weight, measure or delivery certificates

9.24.070 Breaches of bond.

In addition to the general fulfillment of the condition of a bond as required from City officers, the following, among others, shall be a breach of the official bond of a weigher of public or private scale:

A. If a scale and weights under control of any weigher shall be, at any time, so much out of order as to weigh forty or more pounds more than the standard weight or forty or more pounds less than the standard weight, it shall be his duty to so notify the Commissioner in writing within twenty-four hours after the error is found to exist and cease weighing any loads thereon until the scale and weights have been properly repaired, and thereafter he must have the approval of the Commissioner before putting such scale and weights into active service again.

B. If any weigher shall issue any certificate of weighing which shall show the gross or net weight of the load or commodity weighed to be sixty or more pounds more than the true gross or net weight of the commodity weighed, or sixty or more pounds less than the true gross or net weight of the commodity weighed, or the tare to be forty or more pounds less than the true tare, or forty or more pounds more than the true tare, or if any weigher shall fail to keep a book or books and enter therein daily, item by item, in legible handwriting, every load of solid fuel or other commodities weighed, designating its kind, the gross tare and net weight thereof, or keep the quadruplicate (pink) copy of the original weight certificate for his permanent record; or if he shall fail or refuse at any time to permit all the books or papers belonging to his office to be examined by the Comptroller or any person lawfully appointed for such purpose, and to furnish them copies of abstracts of any part thereof, in every such case, among others, a breach of bond shall be deemed in law to be made. (1948 C., Ch. 72, § 37; 1960 C., § 347.050; C. 1994, § 9.24.070; Ord. No. 50077, § 1(part), 1960.)

9.24.080 Forfeiture of position.

Any weigher who shall be twice convicted before either of the City Courts of a breach of his bond or other violation or failure to comply with this chapter, shall, by virtue of such conviction, cease to be a weigher

from and after the day on which the conviction is had, and the clerk of the court shall at once notify the Director of Public Safety of the fact. (1948 C., Ch. 72, § 38; 1960 C., § 347.060; C. 1994, § 9.24.080; Ord. No. 50077, § 1(part), 1960.)

9.24.090 Gross and tare weights and net weight of delivered commodity.

Any person who shall bring or send any vehicle containing a commodity to be sold or delivered in the City, shall before delivery of the commodity take the loaded vehicle to some bonded weighers scale and have the gross weight of the vehicle registered. After delivery of the commodity the empty vehicle shall be returned to the same scale and the tare weight of the vehicle taken and a bonded weighers certificate issued listing the gross and tare weight of the vehicle and the net weight of the delivered commodity. (1948 C., Ch. 72, § 39; 1960 C., §§ 347.070; C. 1994, § 9.24.090; Ord. No. 50077, § 1(part), 1960.)

McQuillin:

24.402 Public scales, weighing and measuring

9.24.100 Compliance when weighing vehicles—Vehicle defined.

No person shall weigh any vehicle, axle of any vehicle, or load from any vehicle for another person, firm or corporation for compensation without first complying with the provisions of Sections 9.24.010—9.24.060. Any person in violation of this section shall be guilty of a misdemeanor and upon conviction shall be fined not more than five hundred dollars or be imprisoned for not more than ninety days or by both fine and imprisonment.

The term "vehicle" as used in this section includes both vehicles with loads or without loads, and includes trucks, tractors, trailers, wagons or containers used in connection with any truck tractor or trailer. (1960 C., § 347.080; C. 1994, § 9.24.100; Ord. No. 55929, § 1, 1971; Ord. No. 51618, § 1, 1963.)

Title 10

ANIMALS

Chapters:

10.04 Dogs and Cats

10.08 Strays

10.12 Cruelty to Animals and Birds

10.16 Dead Animals

10.20 Miscellaneous Provisions

10.24 Wild Animals

10.30 Trap-Neuter-Return (TNR) of Feral Cats

Chapter 10.04

DOGS AND CATS

Sections:

10.04.010 Definitions.

10.04.020 Service animals.

10.04.040 Transient dogs.

10.04.050 Vaccination-registration certificate required.

10.04.060 Vaccination-registration of dogs, cats, kittens, puppies required—Kennels—Exceptions—Tags.

10.04.070 Vaccination-registration system—Requirements, fees and information files.

10.04.080 Registration tags—Nontransferability and prohibited uses.

10.04.090 Registration tag—Replacement after loss.

10.04.100 Registration tag—Unauthorized use prohibited.

10.04.110 Animal regulation center established—Functions and operation.

10.04.115 Relinquishment of owned dogs and cats to the animal regulation center.

10.04.120 Housing of stray and biting animals.

10.04.130 Notice to owner/guardian.

10.04.140 Running at large.

10.04.145 Animals Putting Persons in Fear.

10.04.150 Release fees—Licensed dogs or cats.

10.04.160 Release fees—Unlicensed animals.

10.04.165 Neuter Assistance and Education Fund.

10.04.170 Adoption of strays.

10.04.180 Release of animals held for observation.

10.04.190 Disposal of unclaimed animals.

10.04.210 Destruction of sick and severely injured animals.

10.04.220 Leashing of dogs.

10.04.225 Stray cats—Prohibited.

10.04.230 Enticing dog or cat—Refusal to surrender.

10.04.240 Rabies or suspicion of rabies.

10.04.250 Veterinarian reports.

10.04.260 Procedure when animal bites person.

10.04.270 Dangerous dogs.

10.04.275 Neutering and spaying—Exceptions.

10.04.280 Dogfighting.

10.04.285 Tethering, confinement and treatment of dogs and cats on owner/guardian's property.

10.04.287 Dog training activities in public parks.

10.04.290 Emergency decrees.

10.04.300 Regulations by Commissioner of Health.

10.04.310 Feces removal—Required.

10.04.330 Feces removal—Confinement of dog.

10.04.340 Feces removal—Service dog excepted.

10.04.345 Food service establishments—Dogs in permitted outdoor dining area.

10.04.350 Penalty for violation.

10.04.360 Interfering with health officer or agent.

10.04.010 Definitions.

For the purpose of this chapter the following words or phrases shall have the meaning given herein.

A. "Animal agency" means any corporation, association, individual, partnership, or entity of any kind under contract with the City of St. Louis to perform services under this chapter.

B. "Appropriate shelter" means a cover or protection from the elements containing adequate and appro-

priate bedding such as straw, hay, or wood shavings, which is small enough to allow the dog or cat to retain its body heat but is large enough to allow the animal to stand, turn around, and lie down.

C. "Cat" means all members of the Felis domesticus, either male or female, four months of age or older.

D. "City" means the City of St. Louis, Missouri.

E. "Collar" means a leather or nylon strap to be appropriately fitted around the animal's neck which is not so tight as to restrict breathing, but not so loose as to allow the animal to escape. This collar should never be of the choke, pinch, prong, or spiked variety, and should never be attached to a tethering device by a padlock.

F. "Commercial breeder" means a person, other than a hobby or show breeder, engaged in the business of breeding animals for sale or for exchange in return for a consideration, and who harbors more than one (1) intact female for the primary purpose of breeding animals for sale.

G. "Commissioner of Health" means the Health Commissioner of the City of St. Louis, Missouri, in the Department of Health and Hospitals, the Director of Health, or the Commissioner's or Director's designee.

H. "Dangerous dog" means any dog that, according to the records of the Commissioner of Health, (1) has inflicted severe injury on a human being without provocation on public or private property, (2) has killed a domestic animal without provocation while off the owner/guardian's property, (3) has been previously found to be potentially dangerous, the owner/guardian having received notice of such and the dog again aggressively bites, attacks, or endangers the safety of humans or domestic animals; or (4) the Director of Health or Commissioner of Health or his/her designee has reasonable cause to declare a dog dangerous because there are actions of the dog witnessed by any Animal Control Officer of Department of Health representative, or law enforcement officer, giving rise to probably cause that the dog is dangerous.

I. "Dog" means Canis familiaris, either male or female, four (4) months of age or older.

J. "Domesticated Cat" means a cat that is socialized to humans and is appropriate as a companion to humans. The responsibilities of owners of domesticated cats are set forth in Ordinances 67799, 66384, 62941, and 62853 as Codified in Chapter 10 of the Revised Code of the City of St. Louis.

K. "Federal Laboratory Animal Welfare Act" means Public Law 89-544, as amended (7 U.S.C. 2131), and all regulations issued pursuant thereto.

L. "Harness" means a combination of leather or nylon straps and buckles which, when fitted around the neck and torso of the dog or cat, helps to distribute the pulling force more evenly across the shoulders.

M. "Health officer or agent" means any individual employed by, contracted with, or appointed by the City or the Commissioner of Health for the purpose of aiding in the enforcement of this chapter or any other law or ordinance relating to the regulation or licensure of animals, control of animals, or seizure and impoundment of animals, and including any state or local law enforcement officer or other employee whose duties in whole or in part include assignments that involve the seizure and impoundment of any animal.

N. "Hobby or show breeder" means a non-commercial breeder who breeds dogs or cats with the primary purpose of exhibiting or showing dogs or cats, improving the breed or selling the dogs or cats, and having no more than ten (10) intact females. These breeders shall be classified as hobby or show breeders if they sell only to other breeders or to individuals.

O. "Kitten" means all members of the Felis domesticus under four (4) months of age.

P. "Maliciously" means imposing intentionally with malice or bad motive.

Q. "Owner/guardian" means a person who possesses an animal, has title to or an interest in an animal, harbors or has control of an animal, or has custody or possession of an animal, or who is responsible for an animal's safety and well-being.

R. "Potentially dangerous dog" means any dog that when unprovoked; (1) inflicts bites on a human or domestic animal either on public or private property; (2) chases or approaches a person upon the streets, sidewalks, or any public grounds in a menacing fashion or apparent attitude of attack, or any dog with a known propensity, tendency, or disposition to attack unprovoked, to cause injury, or to cause injury or otherwise to threaten the safety of humans or domestic animals; (3) has been found running or being at large and collected by the City twice in any eighteen-month period; or (4) has been found running or being at large with a group of three (3) or more at large dogs.

S. "Private practitioner" means a graduate veterinarian licensed by the State of Missouri to practice medicine.

T. "Property enclosure of a dangerous dog" means, while on the owner/guardian's property, a dangerous dog shall be securely confined indoors or in a securely enclosed and locked pen or structure, suitable to prevent the entry of young children and designed to prevent the animal from escaping. Such pen or structure shall have secure sides and a secure top, and shall also provide protection from the elements for the dog.

U. "Puppy" means Canis familiaris, either male or female, under four (4) months of age.

V. "Severe injury" means any physical injury that results in broken bones or disfiguring lacerations requiring multiple sutures or cosmetic surgery or breaking of skin.

W. "Spay or neuter" means to alter surgically, chemically or by any other methods approved by the Commissioner of Health a dog or cat for the purpose of rendering such animal incapable of reproduction.

X. "Tethering" means attaching a dog or cat to a stationary object or pulley run by means of a chain, rope, tether, cable, or similar restraint. "Tethering" does not include the use of a leash to walk a dog.

Y. "Veterinarian" means a graduate of an accredited veterinary college who is approved by the Commissioner of Health to perform certain rabies control functions.

(1994 C., § 10.04.010; Ord. No. 71060, § 1, 12-13-2019; Ord. No. 69798, § 4A, 7-15-2014; Ord. No. 67799, § 1, 2007; Ord. No. 66384, § 1, 2004; Ord. No. 65206, § 1, 2001.)

10.04.020 Service animals.

It is unlawful for any service animal trained to guide or assist a person with a disability, including those persons with mobility, visual or hearing impairments, when actually accompanying this person with a disability, to be prohibited admission to any place or vehicle which a person with a disability has a lawful right to enter. The service animal must wear the proper restraints and/or harness. At all times, the service animal or person must have in or on their possession, identification of training as a service animal, for the service animal. The service animal is allowed to accompany the person with a disability in all areas of public accommodation open to other patrons. The service animal shall not be separated from the person with a disability whom it serves. (1994 C., § 10.04.020; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

RSMo:

RSMo 209.150, 209.152 (2016) Service dogs

10.04.040 Transient dogs.

An owner/guardian who is either passing through the City or who has been a resident thereof for less than thirty days and in possession or control of dog shall show evidence of the dog's having received rabies immunization, of any approved type, which would produce an immunization period covering the time in St. Louis. If the imported dog remains in St. Louis more than thirty days, the owner/guardian shall procure a St. Louis vaccination-registration certificate in accordance with the provisions of this chapter. (1994 C., § 10.04.040; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.050 Vaccination-registration certificate required.

No dog or domestic cat, as defined in this Code, shall be permitted within the limits of the City unless such dog or cat is registered and the fee imposed by this chapter is paid, except that transient dogs, as defined herein are excepted from such certificate for the period stipulated above and feral cats are excepted from this requirement. (1994 C., § 10.04.050; Ord. No. 69798, § 4B, 7-15-2014; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.060 Vaccination-registration of dogs, cats, kittens, puppies required—Kennels—Exceptions—Tags.

A. Every person who owns any dog, cat, kitten or puppy, whether in a kennel or not, that is kept any time during the year within the City, or permits a dog, cat, kitten or puppy to come upon, on or in the City, or to remain in or about such person's home, place of business or other premises in the area affected by this chapter, shall have such dog, cat, kitten or puppy vaccinated against rabies and registered as provided in Section 10.04.070. Such dogs or cats must be vaccinated with a vaccine approved by the Commissioner of Health, and at a frequency approved by the Commissioner of Health for said vaccine.

B. Puppies and kittens shall be confined to their owner/guardian's premises. Every person who is responsible for any puppy or kitten shall have such puppy or

kitten vaccinated against rabies and registered as provided in this chapter on or before the puppy or kitten reaches four (4) months of age, but not earlier than three (3) months of age.

C. Every dog or cat which has been vaccinated in accordance with the provisions of the chapter shall at all times wear the registration tag in the manner herein prescribed in Section 10.04.070.D.

D. It shall be unlawful for any person to own any dog or cat unless such dog or cat has been vaccinated against rabies and wears a current, unexpired registration tag, and the owner/guardian possesses a certificate issued in accordance with the provisions of this chapter.

E. Ear-tipped feral cats are exempt from the requirements of this section. (1994 C., § 10.04.060; Ord. No. 69798, § 4C, 7-15-2014; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.070 Vaccination-registration system—Requirements, fees and information files.

A. The Commissioner shall prepare certificates in triplicate and numbered tags for distribution to veterinarians in a form the Commissioner deems is best calculated to further the progress of the program provided for in this chapter. Spaces shall be provided for the following information and for such other information as the Commissioner of Health may require to be filled in by the veterinarians legally authorized to vaccinate dogs and cats:

1. The name and address and phone number of the owner/guardian;

2. The date the vaccination was administered and the type of vaccine administered;

3. The breed, markings, sex and name of the vaccinated dog or cat.

B. The Health Department shall establish a fee of fifty dollars ($50.00) for each combined unit of corresponding vaccination-registration certificate and tag for the purpose of maintaining the system of vaccination-registration except that the fee shall be forty-six dollars ($46.00) less for the vaccination-registration certificate and tag for dogs or cats that have been spayed or neutered or any animal documented and certified by a licensed veterinarian as not being a proper subject for spaying and neutering or micro-chipping due to health or age reasons. The fee shall be the same for all vaccination-registration certificates and tags issued, regardless of the length of time for which they are issued. Maintenance expenses shall include materials, notification, filing, investigation, and enforcement to increase and maintain a high level of rabies immunization in the City. Each registrar shall order from the Health Department the number of certificates and tags needed to perform the duties as registrar, and pay to the Health Department with the order, the fee for each certificate and tag ordered. The registrar shall be reimbursed and paid the fee for each certificate and tag by the owner/guardian of or other person assuming responsibility over the dog or cat being vaccinated and registered, and which reimbursement and payment may be retained by the registrar.

C. It shall be the duty of every veterinarian to be a registrar under this program and when vaccinating any dog or cat to fill out, in triplicate, copies, the certificate obtained from the Commissioner of Health, with the information required in Subsection A of this section, and immediately present one copy to the owner/guardian of the vaccinated dog or cat and mail one (1) copy to the Health Department, by the tenth (10th) day of the following month, for filing and statistical purposes. The Health Department shall maintain cross files of certificates by the name of the owner/guardian and the number of the certificate. The remaining copy of the certificate shall be retained by the person performing the vaccination. The owner/guardian's copy of the certificate shall be retained by the owner/guardian of the vaccinated dog or cat for inspection by an authorized representative of the Commissioner of Health or any police officer.

D. At the time of the vaccination of any dog or cat, the person performing the vaccination shall also deliver to the owner/guardian of the said dog or cat, the tag obtained from the Health Department, as evidence of such inoculation. Every owner/guardian of a vaccinated dog or cat shall attach the tag evidencing rabies vaccination and registration onto the collar or harness of the vaccinated dog or cat, and such collar or harness shall be worn by that dog or cat at all times. Any dog or non-ear-tipped cat found without a tag shall be deemed to be not vaccinated, unless proof of vaccination is provided to the satisfaction of the animal registration center. Ear-tipped feral cats are presumed to be vaccinated against rabies.

E. No person shall divulge, distribute, disseminate, give, transfer, show, make available or allow a copy to be made of the name or address of any owner/

guardian of a dog or cat registered under this chapter to or by any person other than an officer of a county, municipal, state or federal office or department for the purpose of licensing, tax collection, law enforcement, or rabies or other disease control in his respective jurisdiction; nor shall any of the persons authorized to be in possession of such names or addresses use such information for any purpose other than those allowed above nor shall any other person make any use, relating to dogs or puppies, cats or kittens, of any such name or address that has been obtained as a direct or indirect result of the vaccination-registration program provided for in this chapter; nor shall any person pose as, or falsely claim to be a Health Department employee or an agent of the Commissioner of Health or of any other governmental agency while soliciting, or making a survey of the names and addresses of dog or cat owner/guardians. (1994 C., § 10.04.070; Ord. No. 69798, § 4D, 7-15-2014; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.080 Registration tags—Nontransferability and prohibited uses.

Registration tags shall not be transferred from dog or cat to another dog or cat and no person shall affix a registration tag to a dog, cat, puppy or kitten other than the animal for which the tag was issued at the time of its rabies vaccination-registration, nor shall any person affix a registration tag to an animal that has not been vaccinated against rabies, nor shall any person counterfeit, alter, obliterate or attempt to counterfeit, alter or obliterate any rabies-registration tags. (1994 C., § 10.04.080; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.090 Registration tag—Replacement after loss.

The owner/guardian of a dog or cat who loses the assigned registration tag shall report the loss promptly to the Commissioner of Health, and upon proof of prior registration there shall be issued a new dog or cat registration and tag upon the payment of one dollar ($1.00). The Commissioner of Health shall enter the number of the replacement tag on the original immunization certificate. (1994 C., § 10.04.090; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.100 Registration tag—Unauthorized use prohibited.

No person shall make use of, or have in such person's possession, any St. Louis dog or cat registration tag not authorized by the Commissioner of Health or make use of, or have possession of a stolen or counterfeit registration tag. (1994 C., § 10.04.100; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.110 Animal regulation center established—Functions and operation.

There shall be a facility, to be called the animal regulation center, which is to have all legitimate functions of a municipal animal pound, which may be operated by the City or animal agency. The Commissioner of Health shall establish the standards of operations of such animal regulation center. In addition to the above functions, the animal regulation center will perform such rabies and animal disease control functions as are required by this chapter or assigned by the Commissioner of Health. (1994 C., § 10.04.110; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.115 Relinquishment of owned dogs and cats to the animal regulation center.

The fee for owners of cats and dogs who wish to relinquish those animals to the animal regulation center shall be established by the Commissioner of Health and shall equal the estimated costs of care and adoption or disposal of the animal. (Ord. No. 70889, § 5, 12-26-2018.)

10.04.120 Housing of stray and biting animals.

A. All stray animals collected shall be confined at the animal regulation center; provided, however, that during an emergency period when facilities are inadequate at the center, the Commissioner of Health is authorized to make provisions for adequate housing and care elsewhere.

B. Biting dogs or cats or dogs or cats suspected of having rabies confined for isolation and observation shall be handled under procedures established by the Commissioner of Health. The Commissioner of Health is authorized to provide for such isolation and observation at the animal regulation center, at a hospital or facility of a private veterinary practitioner having the staff and equipment to handle such cases, or in a home, provided that any dog or cat authorized by the Director of the animal regulation center for home observation is impounded in an escape-proof enclosure for a period of not less than ten (10) days.

C. Should the Commissioner of Health authorize observation at a hospital or facility of a private veterinary practitioner, the owner/guardian of a cat or dog may request such treatment by application to the Director of the animal regulation center. Such application shall contain the name and address of the facility where the isolation and observation will be done, a description of the dog or cat, and any other information required by the Director of the animal regulation center. Release will be ordered by the Director of the animal regulation center upon verification by the veterinarian that there were no clinical symptoms of rabies on the tenth day after the bite. Verification shall include proof of possession of a valid current license tag.

D. Should the Commissioner of Health authorize home observation, the owner/guardian of a dog or cat may request such treatment by application to the Director of the animal regulation center. Such application shall contain any information reasonably required by the Director of the animal regulation center, and the filing of such application authorizes the Director of the animal regulation center, to conduct reasonable investigations of the premises proposed for the home observation. Release from home observation will be ordered by the Director of the animal regulation center upon verification that there were no clinical symptoms of rabies on the tenth day after the bite and, in the case of a dog or cat held for observation, verification shall include proof of a valid current license tag.

E. Any carnivorous animal, other than a dog or cat, running at large that has bitten any person, or any other animal other than a dog or cat, that is suspected of being afflicted with rabies may be destroyed immediately for the purpose of being tested for rabies, at the direction of the animal regulation center.

F. All animals collected and confined shall be properly housed, fed, watered, and cared for. The Commissioner of Health or agency under contract with the City shall provide for all necessary facilities, food, water, vehicles and other equipment required to carry out the provisions of this chapter. Where confinement for isolation and observation is mandatory, the owner/guardian may order that certain protective sera or other medication be administered to his dog. This may be done for a fee, determined by the Commissioner of Health or the Commissioner's agent, which is payable in advance.

G. No biting animal should be finally released unless procedures approved by the Commissioner of Health to have it spayed or neutered and micro-chipped for identification have been followed. (1994 C., § 10.04.120; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.130 Notice to owner/guardian.

Upon the collection and holding of any animal there shall be kept in the records of the animal regulation center a detailed description of each animal. The animal regulation center shall immediately notify the owner/guardian from whom the animal was taken, if the owner/guardian can be determined. These records shall be available for public inspection. (1994 C., § 10.04.130; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.140 Running at large.

The Commissioner of Health or the Commissioner's agents shall take up and hold any dog which may be found running or being at large in the City contrary to the provisions of this chapter or any lawful order made pursuant thereto. Dogs found running at large may be pursued across, or taken upon, unenclosed private property, unless specifically prohibited by the owner/guardian. (1994 C., § 10.04.140; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.145 Animals Putting Persons in Fear.

A. Pursuant to Section 10.04.140, which authorizes the Commissioner of Health or his or her agents to regulate dogs running at large, this section seeks to protect the right of all citizens to enjoy a normal urban environment free of reasonable fear of dogs possessed within this City.

B. No person shall own, keep, or harbor any dog or other animal that is not securely confined, which by attempting to bite, jump upon, charge toward or otherwise threaten any other person shall cause such other person to have a reasonable fear of immediate serious physical injury. Any person cited pursuant to this subsection may state as a defense subject to proof that the threatening behavior of the animal was instigated or provoked by the complainant or that the fear expressed by the complainant was not a reasonable fear of immediate serious physical injury, and the court shall give any such defense such weight was the court in its judicial discretion finds to be appropriate in the circumstances of the case.

C. No person shall own, keep or harbor any dog in such manner as to hinder, obstruct or interfere with

access to an outside utility meter, utility pole or mailbox by any authorized employee of the utility or postal service. Any dog so owned, kept or harbored so as to hinder, obstruct or interfere with access to an outside utility meter, utility pole or mailbox may be removed by the Department of Health, where it will be treated as a stray under this chapter. (Ord. No. 70889, § 1, 12-26-2018.)

10.04.150 Release fees—Licensed dogs or cats.

Licensed animals taken up and confined in the rabies control center may be released to the owner/guardian upon the furnishing of adequate proof that the animal was licensed at the time of the confinement and the payment of a service fee to the center. The service fee shall be twenty dollars ($20.00) for the first three (3) days and ten dollars ($10.00) per day additional after that period of time. After a five (5) day holding period, the animal may be disposed of by any method provided by City ordinance. No dog or cat should be finally released unless procedures approved by the Commissioner of Health to have it spayed or neutered and micro-chipped for identification have been followed. (1994 C., § 10.04.150; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.160 Release fees—Unlicensed animals.

A. Unlicensed animals taken up and confined at the animal regulation center may be released to the owner/guardian by having them licensed and the payment of a service fee of twenty dollars ($20.00) for the first three (3) days and ten dollars ($10.00) per day additional after that period. After five (5) days' confinement, the animal regulation center may order disposal of the animal by any method provided by this chapter. No dog or cat should be finally released unless procedures approved by the Commissioner of Health to have it spayed or neutered and micro-chipped for identification have been followed.

B. Feral cats may be released to a feral cat caregiver. (1994 C., § 10.04.160; Ord. No. 69798, § 4E, 7-15-2014; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.165 Neuter Assistance and Education Fund.

All fees and penalties collected under the provisions of Sections 10.04.115, 10.04.150 and 10.04.160, not to exceed twenty thousand dollars ($20,000.00) each fiscal year, shall be deposited into a special fund to be known as the Neuter Assistance and Education Fund (the Fund). The purpose of the Fund shall be to offer financial assistance to qualified St. Louis City residents for the spaying or neutering of their dogs and cats and to create public awareness regarding efforts to control pet overpopulation in the City of St. Louis. The Commissioner of Health is authorized and directed to establish rules and regulations for the administration of the Fund and the criteria by which residents shall be deemed qualified for financial assistance from the Fund. (1994 C., § 10.04.165; Ord. No. 70889, § 6, 12-26-2018; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.170 Adoption of strays.

A. After notice required by Section 10.04.130 has been given, if the owner/guardian is known, and after the five (5) days of holding for all stray animals required by Ordinance 60878, or any subsequent ordinance, has elapsed, then such animal may be released to any person upon payment of the fees required under this section or any other ordinance and provided all other requirements for adoption are met. No dog or cat should be finally released unless procedures approved by the Commissioner of Health to have it spayed or neutered have been followed.

B. The Commissioner of Health may, in lieu of having an unclaimed animal killed as provided in this chapter, give such animal into the custody of any adult, which shall be defined herein as any person of 18 years of age or older, requesting custody (animal adoption) of such specific animal as a pet after viewing it, provided all provisions of this section are met. The Commissioner of Health may also at his or her discretion give an animal to an organization for charitable purposes, provided the Commissioner of Health is convinced that the organization will provide a good home. Any such organization shall comply with all of the requirements set forth in this chapter regarding the spaying or neutering, vaccination and licensing of animals.

1. No animal will be released to any person or organization unless in the judgment of the Commissioner of Health the person will humanely care for such animal and will not permit its use for laboratory or experimental purposes.

2. No person will be given to the custody of an individual who, in the judgment of the Commissioner of Health is requesting the animal with the intent to transfer ownership or sell it.

3. Not more than two animals may be given into the custody of any individual or family per calendar year. (1994 C., § 10.04.170; Ord. No. 70889, § 2, 12-26-2018; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.180 Release of animals held for observation.

Biting and other animals that must be observed for a period of ten (10) days at the animal regulation center shall be released to their owner/guardians upon payment of a fifty dollar ($50.00) service fee for the observation period, provided all other requirements of this chapter are met. Animals may be held for the owner/guardian for a maximum of three days past the observation period for a fee of ten dollars ($10.00) per day if the owner/guardian makes such a request. If no such request for extra holding time is made, the animal may be disposed of in any way provided by this chapter at the discretion of the Director of the animal regulation center. (1994 C., § 10.04.180; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.190 Disposal of unclaimed animals.

Animals not claimed by their owner/guardians shall be held for five (5) days, or for ten (10) days for dogs or cats under observation for rabies, after which the animals may be disposed of as provided for in Section 10.04.190 or 10.04.210 or may be humanely put to death in a manner prescribed by the Commissioner of Health. (1994 C., § 10.04.190; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.210 Destruction of sick and severely injured animals.

Collected, unidentified animals which are brought to the center by the fieldsmen in a visibly sick condition due to canine distemper, hepatitis, leptospirosis, advanced demodectic or sarcoptic mange, or other serious communicable disease, or are severely injured, which in a veterinarian's judgment renders the animal beyond a reasonable hope of recovery, may be ordered destroyed at once by the veterinarian or, in his absence, by the Director of the animal regulation center. Sick animals whose owner/guardian can be determined shall be placed in isolation until the owner/guardian can be contacted for instructions as to destruction, treatment, or release to a private veterinarian for treatment. Such release shall be made only after all requirements of this chapter, as to licensing and fees, are met or provided for. (1994 C., § 10.04.210; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.220 Leashing of dogs.

A. No person owning, having a proprietary interest in, harboring or having the care, charge, control, custody or possession of a dog, shall permit such dog to be in or upon any public street, park or other public place unless such dog is upon a secure leash not more than six feet long held continuously in the hands of a responsible person capable of controlling the dog, or unless the dog is securely confined within an automobile, or in or upon any enclosed lot or premises; provided, however, that this section shall not apply to any such person who is in possession or operating within the terms of a valid, unrevoked permit from the City for the conduct of obedience or other types of trial or show of dogs in or upon any public place.

B. Subsection A of this section shall not apply to dogs under the control of a competent person in a designated fenced dog exercise area in a City park or portion of a City park or other City-owned property approved and designated for that purpose by the Director of Parks, Recreation and Forestry or by ordinance.

C. The following regulations and limitations shall apply to all dog exercise areas:

1. Unless designated by ordinance, the Director of Parks, Recreation and Forestry shall designate City-owned property as a dog exercise area and shall issue revocable permits to a dog exercise sponsor. The City shall provide the dog exercise area. The sponsor shall provide, as a minimum, perimeter fence and double pedestrian gates and fence and gate maintenance with the expectation of reasonable user behavior. The sponsor shall register users, provide education aimed at teaching basic obedience to users, insure the overall cleanliness of the area on a day to day basis, the proper disposal of all waste, repair and seeding of bare areas and filling of holes caused by the users, general maintenance, including turf maintenance and weed control, and fence and gate maintenance which is beyond reasonable user behavior.

2. A neighborhood or a nonprofit organization must sponsor a dog exercise area.

3. Dog exercise area will be open from 6 o'clock a.m. to one hour after sunset. There shall be no lights in the exercise area except as provided in the permit. If lighting is permitted, the dog exercise area shall close at 10:00 p.m.

4. As a condition of admission to such dog exercise area, the owner of such dog(s) must use a suitable container or instrument to remove dog feces from the designated area and dispose of it in the sponsor-provided waste containers. The sponsor shall provide suitable containers and shall dispose of materials in the containers in a manner that is consistent with federal, state and local ordinances and regulations.

5. Aggressive, sick dogs, and/or dogs with any external parasites are not permitted in the exercise area. Owners are legally responsible for any injury caused by their dog.

6. All dogs must be under visual and voice control by owners at all times. Excessively barking or uncontrollable dogs must be removed immediately.

7. Dogs shall not be left unattended in the exercise area. No person may bring more than three dogs into the exercise area at any one time.

8. Dogs under four (4) months old are not permitted in the exercise area.

9. All dogs shall have been vaccinated and legally licensed prior to using the facility and shall wear license and ownership tags.

10. Female dogs in estrus (heat) are not permitted in the exercise area.

11. Professional dog trainers may not use the facilities in the conduct of their business.

12. Children under 14 shall be accompanied by an adult while in the exercise area and are not permitted to run, shout, scream, wave their arms, or otherwise excite or antagonize dogs in the exercise area.

13. Bicycles, roller blades, roller skates, skateboards and strollers, and the like, are not permitted in the exercise area. Wheelchairs are permitted.

14. Choke, prong, pinch and spiked collars on dogs are not permitted in the exercise area.

15. The owner of any dog using the designated exercise areas must have in his possession at all times that the dog is in the exercise areas, a leash for such dog which shall be worn by the dog at all times that the dog is not in the exercise area.

16. Owners shall otherwise comply with all rules governing the parks and relevant parking regulations. No food shall be permitted in the dog exercise area.

17. Use of dog exercise areas by any dog shall constitute implied consent of the dog's owner to all of the conditions stated in this section and the permit and shall constitute a waiver of liability to the City of St. Louis and an agreement and undertaking to protect, indemnify, defend and hold the City of St. Louis harmless for any injury or damage caused by such dog during any time the dog is in an exercise area.

18. The dog exercise area sponsor shall provide to the Director of Parks, Recreation and Forestry, on an annual basis, a liability insurance policy in the amount of $1,000,000.00. The policy shall name the City of St. Louis as additional insured.

19. Dog exercise area sponsor may charge an annual usage fee and limit use of exercise area to those dog owners who are current in payment of the usage fee for the purpose of maintaining and improving the dog exercise area. Said fees shall be reasonable and inline with the same type of fee as set by other dog exercise areas within the City and of St. Louis County.

D. The Director of Parks, Recreation and Forestry may promulgate additional rules and regulations concerning the use of the dog exercise areas, but not limited to, the following:

1. Application Process. Sponsoring group submits the following to Director of PRF:

a. Letter of support from Alderperson;

b. Letter of endorsement from applicable neighborhood association(s);

2. Sponsorship Information. Name, address and phone numbers of primary contact person and four board members (primary contact will have his/her number posted on the dog park for questions and complaints);

3. Petition signed by 25 residents of the City of St. Louis who are potential dog park users with name, address, and phone number for verification;

4. The applicant must demonstrate the ability to fund the construction and maintenance of the dog park;

5. The sponsoring group must adhere to the following dog park conditions:

a. *Size.* No dog park will be more than 50,000 sq. ft. and no more than ¼th of total park acreage—an average of 500 sq. ft. per dog;

b. *Fence Height.* 60 inches minimum;

c. *Gates.* Must be double entry;

d. *Surface.* Stone dust or grass. If grass, it must be irrigated and reseeded in the fall and spring—understanding that some of the area will have to be cordoned off during the reseeding process;

e. *Water.* Must have a viable water source for the area;

f. *Rules.* Dog park rules must be posted with the telephone number for complaints. The Animal Regulation Division of the Health Department will be the final arbitrator of complaints;

g. *Construction.* All construction must conform to all existing City regulations and codes and final plans must be approved by the City.

Failure to comply with all the above rules and the rules promulgated by the Director may result in the revocation of said permit.

E. Private property dog parks fall under the jurisdiction of the Animal Regulation Division of the Health Department. The owner of the property must obtain an annual permit for the use of the property as a dog park. The Division may refuse to issue an annual permit if there have been violations of the rules and regulations for the use of the dog park. The property cannot be used for any other purpose other than a dog park. Listed below are the minimum rules and regulations, and the Division may promulgate other rules and regulations:

1. All dogs shall be currently rabies vaccinated, registered and wearing the appropriate tag and/or held by the owner while in the park;

2. No female dogs in estrus (heat) are allowed;

3. Aggressive, sick dogs and/or dogs with any external parasites are not permitted in the dog park. Any/all dogs showing aggressive behavior towards people or other dogs must be removed immediately. Owners are responsible for any injury caused by their dog;

4. Any attack to any person or animal must be immediately reported the animal regulation center;

5. All dogs must be held on a leash no longer than 6 feet in length by a responsible person so as to effectively prevent it from biting any person or animal until entry into the dog exercise area;

6. The park can only be open from 6:00 a.m. to one hour after sunset;

7. As a condition of admission to such dog park, the owner of such dog(s) must use a suitable container or instrument to remove dog feces from the designated area and dispose of it in a sponsor-provided waste container. The sponsor must provide suitable containers and shall dispose of materials in the containers in a manner that is consistent with federal, state and local laws and regulations;

8. Dogs shall not be left unattended in the dog park. No person may bring or have in the dog park more than three dogs at any one time;

9. Dogs under four (4) months old are not permitted in the dog park;

10. Professional dog trainers may not use the facilities in the conduct of their business;

11. Children under 14 shall be accompanied by an adult while in the exercise area and are not permitted to run, shout, scream, wave their arms or otherwise excite or antagonize dogs in the dog park;

12. Bicycles, roller blades, rollers skates, skateboards and strollers and similar devices are not permitted in the dog park. Wheelchairs are permitted;

13. Choke, prong, pinch and spiked collars are not permitted in the dog park;

14. No food shall be permitted in the dog park;

15. The dog park sponsor may charge an annual usage fee and limit the use of the dog park to those dog owners who are current in the payment of the usage fee which shall be used for the purpose of maintaining and improving the dog park. Said fees shall be inline with the same amount of fee as charged for the use of other dog parks and dog exercise areas within the City and St. Louis County;

16. Dog Park Applications and Qualifications.

a. The applicant must submit to the Division a neighborhood petition signed by a majority of person residing and a majority of person doing business within a petition circle, which is defined as an area, circular in shape, with a radius of three hundred fifty (350) feet drawn from the center of the front of the dog park project to the street. A person shall be considered to reside within the petition circle if: (1) his domicile is within the petition circle; and (2) he is registered to vote from an address within the petition circle on the date the application is filed with the Division;

b. The applicant must submit to the Division with the application the name, address and phone numbers of three contact persons. The primary contact person must have his name and number posted on the dog park for questions and complaints;

c. The applicant must submit to the Division a drawing showing the location and size of the dog park. There shall be no less than 500 square feet for each dog in the dog park. The number of allowable dogs must be posted on the dog park gate. The applicant must demonstrate they have the ability to fund the construction and maintenance of the dog park;

d. The dog park must be surrounded by a fence of at least five feet but no more than 8 feet;

e. The gate must be double entry and the dog park rules must be posted on the exterior gate at all times;

f. The surface must be stone dust or grass. If grass, it must be irrigated and reseeded in the spring and fall;

g. There must be a viable water source in the dog park;

h. All construction must conform to all existing City regulations and codes and final plans must be approved by the City;

i. The Animal Regulation Division of the Health Department will be the final arbitrator of complaints and the interpretations.

j. Private property dog parks shall be constructed, remodeled, or operated in compliance with the provisions of this section, except that an applicant may request, and the Department of Health may grant, a variance in those cases where it is determined that strict compliance would cause unusual difficulties or hardships and that the variance would not affect the healthful operation of the dog park. Before granting a variance, the Health Division shall require adequate proof from the applicant that the requested variance will comply with the basic intent of these regulations for health and safety and that no health hazard would be created if the variance is granted.
(1994 C., § 10.04.220; Ord. No. 71060, § 3, 12-13-2019; Ord. No. 66595, §§ 2—6, 2004; Ord. No. 66384, § 1, 2004; Ord. No. 65206, § 1, 2001.)

10.04.225 Stray cats—Prohibited.

No owner/guardian of any domestic cat shall permit such domestic cat to be found at large on the streets of the City or in any public place or on another person's property. (1994 C., § 10.04.225; Ord. No. 69798, § 4F, 7-15-2014; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.230 Enticing dog or cat—Refusal to surrender.

No person shall entice any dog or cat out of the enclosure of the owner/guardian thereof or molest or seize any dog or cat while lawfully held or led by any responsible person, except that no person shall refuse to surrender any dog that has bitten a person to an agent of the Commissioner of Health for isolation and observation as required by this chapter. (1994 C., § 10.04.230; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.240 Rabies or suspicion of rabies.

Every person owning or harboring an animal known to have or suspected of having rabies, or which has been bitten by or exposed to a rabid animal, shall confine and isolate such animal in some secure place and immediately notify the animal regulation center as to where the animal is confined. If required by the Commissioner of Health or the Rabies Control Officer, such person shall surrender the animal to the animal regulation center for disposal. (1994 C., § 10.04.240; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.250 Veterinarian reports.

Every veterinarian in the City shall report at once, by telephone and also in writing, every case of clinical rabies, of which the veterinarian has knowledge, to the Commissioner of Health. Veterinarians shall submit the brain of all animals treated by them and dying of rabies or suspected rabies to the Health Department Laboratory for confirmation of diagnosis. Veterinarians vaccinating dogs that are kept within the City shall furnish the owner/guardian with a certificate of immunization giving the name and address of the owner/guardian, the date of immunization, the type of vaccine used, the sex and complete description of the dog and any other information required by the Commissioner of Health. (1994 C., § 10.04.250; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.260 Procedure when animal bites person.

In case an animal bites any person, the animal regulation center shall immediately be notified by any person with knowledge of such incident. Such animal immediately comes under the jurisdiction of the Commissioner of Health or the Commissioner's assigns, and the animal regulation center shall supervise the isolation and observation of such animal. Dogs and cats that have bitten any person shall be handled in accord with Section 10.04.120.B, C and D, and all other animals shall be handled in accord with Section 10.04.120.E. (1994 C., § 10.04.260; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.270 Dangerous dogs.

A. Designation of Dog as Dangerous Dog. The Director of Health or his or her designee may declare

an animal a Dangerous Dog if he or she has probable cause to believe that the animal falls within the definition set forth in this chapter.

1. *Probable Cause to Declare.* For the purposes of this section, probable cause includes:

a. A prior court conviction that indicates that the dog has acted in a manner causing it to fall within the definition of a Dangerous Dog; or

b. A dog bite report filed with the Department of Health; or

c. Actions of the dog witnessed by any Animal Control Officer or Department of Health representative or law enforcement officer; or

d. A verified report that the animal previously has been found to be either a Potentially Dangerous Dog or a Dangerous Dog by any animal control authority; or

e. Other substantial evidence admissible in a court of law.

2. *Service of Declaration.* The declaration shall be in writing, and shall be served on the owner or keeper either by regular United States mail to the owner's keeper's or harborer's last known address, or by personal service.

3. *Contents of Declaration.* The declaration shall state at least:

a. A description of the animal; and

b. The name and address of the owner, keeper or harborer of the animal, if known; and

c. The whereabouts of the animal if not in the custody of the owner; and

d. The facts upon which the declaration is based; and

e. The availability of a hearing in case the person objects to the declaration, if a request is made in writing within five days of the date of receipt of the declaration; and

f. The restrictions placed on the animal as a result of the declaration; and

g. The penalties for violation of the restrictions, including the possibility of the destruction of the animal and imprisonment or fining of the owner, keeper or harborer.

4. *Appeal of Declaration.* The owner, keeper or harborer may, within five days of receipt of the declaration, file a written request for a hearing. The request must be sent to the Commissioner of Health. The appeal will be heard by the Commissioner or a hearing officer who is appointed by the Commissioner to consider these appeals. Following the Commissioner's or hearing officer's decision pursuant to this section the owner, keeper or harborer shall be considered to have exhausted such owner's, keeper's or harborer's administrative appeal. If the Commissioner or hearing officer finds that there is insufficient evidence to support the declaration, it shall be rescinded, and the restrictions imposed thereby annulled. If the Commissioner or hearing officer finds sufficient evidence to support the declaration, then it shall be affirmed.

5. *Impoundment Pending Appeal.* Following the service of a declaration of a Dangerous Dog, and pending appeal pursuant to this section, the Health Commissioner may, if circumstances require as determined by the Commissioner, impound the animal at the owner's, keeper's or harborer's expense, pursuant to the provisions of this chapter, until the Commissioner of Health orders either its redemption or destruction.

B. *Certificate of Registration.*

1. It is unlawful for any person to have a dangerous dog in the City without a certificate of registration issued under this chapter. This section shall not apply to dogs used by law enforcement officials for police work.

2. The Commissioner of Health of the City shall issue a certificate of registration to the owner/guardian of each dangerous dog if the owner/guardian presents to the animal control unit sufficient evidence of:

a. A proper enclosure to confine a dangerous dog and the posting of a notice conspicuously visible to the public at each entrance to the premises and on each side of the proper enclosure, reading in letters not less than one (1) high, "A DANGEROUS DOG IS PRESENT ON THIS PROPERTY AND IS NOT ALLOWED OUT OF HOUSE OR PEN WITHOUT LEASH AND MUZZLE. REPORT VIOLATIONS TO 314-657-1500." In addition, each such notice shall conspicuously display a warning symbol that informs children of the presence of a dangerous dog. If the dangerous dog is kept in a multi-resident dwelling, a notice shall be posted at the entrance to the building as well as the entrance to the dwelling unit;

b. i. A surety bond issued by a surety insurer qualified under the chapter in a form acceptable to the animal control authority in the sum of at least fifty thousand ($50,000.00) dollars, payable to any person injured by the dangerous dog; or

ii. A policy of liability insurance, such as homeowner's insurance, issued by an insurer qualified in the amount of at least fifty thousand ($50,000.00) dollars,

insuring the owner for any personal injuries inflicted by the dangerous dog. Such surety bond or insurance policy shall provide that no cancellation of the policy will be made unless ten (10) days' written notice is first given to the Commissioner of Health;

c. Sufficient evidence that such animal has been spayed or neutered and micro-chipped for identification;

d. In addition, the owner/guardian shall provide the Commissioner of Health with the following information prior to the issuance of a certificate of registration:

i. Name and address of owner/guardian;

ii. Dog's name;

iii. Photograph of dog;

iv. Location where dog is to be enclosed;

v. Veterinarian's name;

vi. Dog's immunization number.

A minor, which is defined as a person under eighteen years of age, may not be the keeper or owner/guardian of such dog.

e. In the event that the adult owner/guardian of the dangerous dog dwells in a multi-resident dwelling, proof must be provided that the owner of the dwelling as maintained in the records of the Assessor of the City of St. Louis is notified of the presence of the dangerous dog, by certified mail or personal hand-delivery by the Commissioner of Health or the Commissioner's designee.

3. The fee for the registration of dangerous dogs shall be established by the Commissioner of Health and shall equal the estimated costs of administering the provisions of this chapter with respect to dangerous dogs.

4. It is unlawful to permit or allow a dangerous dog to be outside the proper enclosure unless the dog is muzzled and restrained by a substantial chain or leash not longer than six (6) feet and under physical restraint of a responsible person. The muzzle shall be made in a manner that will not cause injury to the dog or interfere with its vision or respiration but shall prevent it from biting any person or animal.

5. Dogs shall not be declared dangerous if the threat, injury, or damage was sustained by a person who, at the time, was committing a willful trespass or other tort upon the premises occupied by the owner/guardian of the dog or was tormenting, abusing or assaulting the dog or has, in the past, been observed or reported to have tormented, abused, or assaulted the dog or was committing or attempting to commit a crime.

6. Any dangerous dog shall be immediately confiscated by an animal control authority if the (1) dog is not validly registered under this chapter; (2) owner/guardian does not secure and maintain the liability insurance coverage required by this chapter; (3) dog is not maintained in the proper enclosure; or (4) dog is outside of the dwelling of the owner/guardian or outside of the proper enclosure and not under physical restraint of the responsible person.

7. Upon any attack or assault by a dangerous dog, the Commissioner of Health or the Commissioner's designee is hereby empowered to confiscate and destroy such vicious dog.

8. Upon any aggressive attack or assault by any dog causing the severe injury or death of any human, the Commissioner of Health or the Commissioner's designee is hereby empowered to confiscate and destroy such vicious dog.

(1994 C., § 10.04.270; Ord. No. 71060, § 5, 12-13-2019; Ord. No. 70889, § 3, 12-26-2018; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.275 Neutering and spaying—Exceptions.

The provisions of this chapter regarding the neutering, spaying and micro-chipping of dogs and cats shall not apply to any animal that is to be trained and actively used by law enforcement agencies for law enforcement and rescue activities; any guide, signal or service dog; any animal documented and certified by a licensed veterinarian as not being a proper subject for spaying and neutering or micro-chipping due to health or age reasons; and all animals owned by certified and licensed breeders or hobby/show breeders. (1994 C., § 10.04.275; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.280 Dogfighting.

No person shall enter a dog in a dog fight. (1994 C., § 10.04.280; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

RSMo:

RSMo 579.025 (2016) Dogfighting

10.04.285 Tethering, confinement and treatment of dogs and cats on owner/guardian's property.

A. No owner/guardian or other person controlling or possessing any dog or cat shall leave a dog or cat

tethered outdoors for ten (10) continuous hours or for a total of twelve (12) hours in a twenty-four-hour period.

B. No owner/guardian or other person controlling or possessing any dog or cat shall tether a dog or cat except by means of a properly fitting harness or collar of nylon or leather construction and a tether in proportion to the size of the animal. The tether must be at least fifteen (15) feet in length with a swivel at both ends.

C. No owner/guardian or other person controlling or possessing any dog or cat shall tether a dog or cat outdoors under conditions where the animal or tether can become entangled on the tether, another animal, or some other object or where the tether can restrict the animal's access to suitable, edible, and sufficient food, clean water (cool in summer and unfrozen in winter), and appropriate shelter.

D. No owner/guardian or other person controlling or possessing any dog or cat shall tether a dog or cat outdoors in unsafe or unsanitary conditions or when said tether does not allow the animal to defecate or urinate in an area separate from the areas where it must eat, drink, or lie down.

E. No owner/guardian or other person controlling or possessing any dog or domesticated cat shall fail to provide the dog or domesticated cat with sanitary living conditions including shelter proper for the species and sufficient to protect the animal from extreme temperatures, wind, rain, snow and sun. No owner/guardian or other person controlling or possessing any dog or domesticated cat shall leave that dog or domesticated cat unattended and:

1. Outside in the case of severe weather warning conditions, during a severe weather warning, or when a heat advisory or cold advisory has been issued by a local or state authority or jurisdiction, or where temperatures and/or heat and cold indices fall below thirty-two degrees Fahrenheit (32° F) or above ninety-three degrees Fahrenheit (93° F);

2. Confined in enclosed areas without adequate provisions for temperature control when the outdoor temperature or cold index is below thirty-two degrees Fahrenheit (32°F), or above ninety-three degrees Fahrenheit (93° F); enclosed garages, basements, and attics without adequate provision for temperature control, as well as enclosed vehicles, are prima facie evidence of insufficient protections of dogs and cats from extreme temperatures;

3. If the dog or domesticated cat is younger than six (6) months of age;

4. For longer than thirty (30) minutes without adequate food, water and shelter, as required by this chapter.

Each violation of each of the numbered paragraphs of this section of the Revised Code of the City of St. Louis § 10.04.285.E. constitutes a separate violation of this Chapter for the purpose of assessing a penalty.

F. No owner/guardian or other person controlling or possessing any dog or cat shall maliciously and knowingly restrain a dog or cat using a metal chain, tether, or metal wire grossly in excess of the size necessary to restrain a dog or cat safely.

G. All dogs and cats shall be treated humanely and shall not be beaten, tormented, overworked, neglected or cruelly treated, except that reasonable force may be used to drive off vicious animals. No animal shall be induced or encouraged to perform through the use of chemical, mechanical, electrical or manual devices which may cause physical injury or suffering.

H. The owner, keeper or person harboring any female dog shall, during the period that such animal is in heat, keep it securely confined and enclosed within a building except when out upon such person's premises briefly for toilet purposes while on leash or otherwise effectively physically restrained. For the purposes of this section, the term "briefly for toilet purposes" shall consist of a maximum time of 15 minutes on each separate occasion.

I. Excessive Animal Noise Prohibited. No person shall own or keep any animal which by making excessive noise disturbs a neighbor. 'Excessive noise" shall mean and include any noise produced by an animal which is so loud and continuous or untimely as to disturb a neighbor. "Neighbor" shall mean an individual residing in a residence structure and who does in writing state that he or she will testify under oath as to the animal making excessive noise. (1994 C., § 10.04.285; Ord. No. 71060, § 2, 12-13-2019; Ord. No. 70889, § 4, 12-26-2018; Ord. No. 67799, § 2, 2007; Ord. No. 66384, § 1, 2004; Ord. No. 65206, § 1, 2001.)

10.04.287 Dog training activities in public parks.

A. No dog training activity shall occur in a St. Louis public park without a valid permit if such training involves more than two (2) dogs. No dog training whatsoever shall involve teaching the dog to attack a

person, another animal or inanimate object, or if such training involves the use of a stick, club, padded suit, or whip.

B. No dog training activity in a St. Louis public park shall occur within three hundred (300) feet of any playground, jogging trail, athletic fields, swimming pools, tennis courts and/or basketball courts. All prior existing ordinances shall remain in full force and effect.

C. Any person wishing to train dogs in a public park is required to obtain a valid permit from the City for the conduct of obedience or other types of training of dogs in or upon any public place in accordance with Subsection A of this section. The Parks Department shall create the policies and procedures for issuing and revoking such permits.

D. Exemption. This section shall exempt properly authorized dog parks.

E. Penalty. Any person who violates the provisions of this section shall be subject to a fine of not less than five hundred dollars ($500.00). (1994 C., § 10.04.287; Ord. No. 68991, §§ 1—5, 10-20-2011.)

10.04.290 Emergency decrees.

In times of emergency conditions which, in the opinion of the Commissioner of Health, present real or potential dangers to the human or animal population of the City because of a weakness in the rabies control program or the threat or actual presence of rabies in the City, the Commissioner of Health shall be authorized to issue any decrees or use any other available means necessary to eliminate or abate hazards to the people of the City. Such decrees may order confinement, or other regulation, of animals other than dogs, low-cost mass immunization clinics, or any other measure reasonably related to the protection of the health and welfare of the public. (1994 C., § 10.04.290; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.300 Regulations by Commissioner of Health.

The Commissioner of Health, after consultation with the Board of Health and with the approval of the Director of Health and Hospitals, may make and adopt such reasonable rules and regulations as are necessary for the proper and efficient administration of this chapter. (1994 C., § 10.04.300; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.310 Feces removal—Required.

It shall be the duty of every dog owner/guardian, defined and identified under the provision of Sections 10.04.010 et al. of the Revised Code of the City and the applicable provisions of Ordinance 57980 of the City of St. Louis, 1980, to remove any feces left by said dog on any sidewalk, gutter, street, park or other public area, or on any private property used by said dog for depositing any feces, if the same is done in the presence of the owner/guardian of said dog, or in the presence of any person exercising control over said dog at the time of said offense. (1994 C., § 10.04.310; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.330 Feces removal—Confinement of dog.

Every dog found to be in violation of Section 10.04.310 that is not properly registered and vaccinated, as required by Section 10.04.070, shall be confined as a stray dog, whether the same at the time of detention for violation of Section 10.04.310 is on a leash or other restraining device or not; and the same shall be held and detained in all respects as called for by Section 10.04.010 et al. of the Revised Code of the City of St. Louis, 1980, until released or provided by Section 10.04.160, and upon release, shall still be answerable and chargeable with an offense under Sections 10.04.310. (1994 C., § 10.04.330; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.340 Feces removal—Service dog excepted.

The provisions of Section 10.04.310 shall not apply to a service dog accompanying any person with visual or mobility disabilities. (1994 C., § 10.04.340; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.345 Food service establishments—Dogs in permitted outdoor dining area.

A food service establishment may permit a customer to be accompanied by a dog in an outdoor dining area if:

A. The food service establishment posts a sign in a conspicuous location stating that dogs are allowed in the outdoor dining area; and

B. The food service establishment provides waterless hand sanitizer in a convenient location for customers and employees, or upon request; and

C. The food service establishment immediately cleans up any unsanitary condition resulting from a dog; and

D. The customer and the dog access the outdoor dining area directly from the exterior of the food service establishment; and

E. The dog does not enter the interior of the food service establishment; and

F. The customer keeps the dog on a leash which keeps the dog close to the customer; and

G. The customer controls the dog; and

H. The operator of the food service establishment may ask the customer to remove any dog whose activities or behavior are deemed undesirable or disruptive at the sole discretion of the operator; and

I. The customer does not allow the dog on a seat, table, countertop, or similar surface; and

J. The customer does not allow the dog to come in contact with plates or utensils; and

K. In the outdoor dining area, the food service establishment does not:

1. Prepare food; or

2. Permit open food, except for food that is being served to a customer. (1994 C., § 10.04.345; Ord. No. 67611, § 1, 2007.)

10.04.350 Penalty for violation.

Every person found guilty for the first time of a violation of any provision of this chapter shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. Upon a finding of guilt of a second violation, the person shall be punished by a fine of not less than three hundred dollars ($300.00) or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment; upon a third and subsequent violation, the person shall be punished by a fine of not less than five hundred dollars ($500.00) and by imprisonment for not less than ten (10) days. (1994 C., § 10.04.350; Ord. No. 66384, § 1(part), 2004; Ord. No. 65206, § 1(part), 2001.)

10.04.360 Interfering with health officer or agent.

An owner or any person is guilty of interfering with a health officer or agent when he:

A. Conceals an animal from a health officer or agent of the Department of Health or the Commissioner's designee.

B. Refuses to surrender an animal upon the lawful request of a health officer or agent of the Department of Health or the Commissioner's designee.

C. Physically attempts to prevent impounding of an animal by a health officer or agent of the Department of Health or the Commissioner's designee. (Ord. No. 70889, § 7, 12-26-2018.)

Chapter 10.08

STRAYS

Charter:

Scheme § 35 Regulations as to animals running at large

RSMo:

RSMo Ch. 271 (2016) Strays

Sections:

10.08.010 Running at large prohibited.

10.08.020 Advertisement and sale of impounded animals.

10.08.030 Duty of Marshal.

10.08.010 Running at large prohibited.

No goats, cattle or hogs of any description shall be permitted to run at large within the City limits. All cattle, goats, hogs or pigs found running at large within the City limits shall be taken up by the City Marshal and placed in some secure pen or pound, to be provided by him for that purpose. (1948 C., Ch. 6, § 35; 1960 C., § 515.010; 1994 C., § 10.08.010.)

RSMo:

RSMo 270.010 (2016) Domestic animals running at large

McQuillin:

24.300 Animals at large

10.08.020 Advertisement and sale of impounded animals.

Whenever any cattle, goats, hogs or pigs are taken up, under the provisions of Section 10.08.010, it is lawful for the City Marshal, and it is his duty, to sell the same at auction, to the highest bidder, for cash, after having given five days' notice, by advertising in the newspapers doing the City printing, of the time and place of the sale. The place of the sale shall be the City dog pound, and the mode of the sale shall be by selling each animal separately. Moneys arising from the sale shall, after the expense of taking up and selling animals is deducted, be paid over to the owners, on their proving to the City Marshal that the cattle, goats, hogs and pigs belonged to them. If no owner appears within thirty days after the sale, the money, after deducting the

costs aforesaid, shall be paid into the City Treasury. (1948 C., Ch. 6, § 36; 1960 C., § 515.020; 1994 C., § 10.08.020.)

McQuillin:

24.303 Impounding, forfeiture, sale or other disposition

10.08.030 Duty of Marshal.

It shall be the duty of the City Marshal at all times to take up any and all cattle, goats, hogs or pigs running at large within the City limits, and employ two or more persons to aid him in enforcing this chapter, whose compensation for taking up such animals shall not exceed fifty cents per head. (1948 C., Ch. 6, § 37; 1960 C., § 515.030; 1994 C., § 10.08.030.)

McQuillin:

24.307 Duty and liability of poundmaster

Chapter 10.12

CRUELTY TO ANIMALS AND BIRDS

Sections:

10.12.010 Cruelty to animals—Penalty.
10.12.020 Fine and penalty disposition.
10.12.030 Tying calf and sheep legs.
10.12.040 Molestation of birds.
10.12.050 Excepted birds.
10.12.060 Sale or dyeing of newly hatched birds.
10.12.070 Declawing of cats prohibited.

10.12.010 Cruelty to animals—Penalty.

Any person who shall overdrive, overload, drive when overloaded, ill-treat, torture, torment or unnecessarily or cruelly beat or needlessly mutilate or kill, or cause or procure to be overdriven, overloaded, driven when overloaded, ill-treated, tortured, tormented, or unnecessarily or cruelly beaten or needlessly mutilated or killed any dumb animal, shall, for every offense, be guilty of a misdemeanor and on conviction thereof shall be punished by a fine of not less than five dollars nor more than five hundred dollars or by imprisonment in the City Workhouse for a period not exceeding six months, or by both such fine and imprisonment. (1948 C., Ch. 6, § 38; 1960 C., § 514.010; 1994 C., § 10.12.010.)

Cases:

St. Louis may pass an ordinance making it a misdemeanor to overdrive, overload, ill-treat or cruelly beat any dumb animal. *City of St. Louis v. Schoenbusch,* 95 Mo. 618, 8 S.W. 791 (1888).

McQuillin:

24.283 Cruelty to animals

10.12.020 Fine and penalty disposition.

One-half of all fines and penalties imposed for the violation of Section 10.12.010, or any amendment thereto, or similar ordinance hereafter enacted, shall, when paid and received into the City Treasury, be the property of and belong to the humane society of Missouri. On the first days of January, April, July and October of each year, the Comptroller shall draw his warrant on the treasurer, in favor of the humane society, for the amount of such fines and penalties received into the treasury during the preceding three months, and deliver the same to the treasurer of the humane society. (1948 C., Ch. 6, § 39; 1960 C., § 514.020; 1994 C., § 10.12.020.)

10.12.030 Tying calf and sheep legs.

It is unlawful for any person to confine calves or sheep by tying their legs, or in any way confine them in close boxes, or otherwise, or to have in their possession any calves or sheep so confined excepting while conveying them to and from market or places of business. Any person violating this section shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 40; 1960 C., § 514.030; 1994 C., § 10.12.030.)

10.12.040 Molestation of birds.

All persons are forbidden to molest, injure or disturb in any way any small birds in the City, or the nest, young or brood of any small birds in the City. If any person shall willfully injure, molest, take or disturb in any way any small birds, except sparrows, pigeons and European starlings, he shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 41; 1960 C., § 514.040(part); 1994 C., § 10.12.040; Ord. No. 50168, § 1(41), 1961; Ord. No. 45620, § 1(41), 1951.)

City Counselor Ops.: 8655, 8720

10.12.050 Excepted birds.

Birds protected by Section 10.12.040 are all varieties of birds, except hawks, sparrows, vultures, owls, pigeons and European starlings. Pigeons and European starlings may be humanely disposed of under the rules and regulations promulgated by the Health Commis-

sioner for the disposal of pigeons and European starlings. (1948 C., Ch. 6, § 42; 1960 C., § 514.040(part); 1994 C., § 10.12.050; Ord. No. 50168, § 1(42), 1961; Ord. No. 45620, § 1(42), 1951.)

City Counselor Ops.: 8655, 8720

10.12.060 Sale or dyeing of newly hatched birds.

It is unlawful to use as a toy or for display or decorative purposes or to sell or to expose for sale, or offer for sale or to subject to mistreatment or careless handling or to dye any live, newly hatched fowl or bird. (1948 C., Ch. 6, § 43; 1960 C., § 514.050; 1994 C., § 10.12.060.)

10.12.070 Declawing of cats prohibited.

A. Except as provided in subsection B. of this section, it shall be unlawful for any person to declaw a cat.

B. Notwithstanding the restrictions set forth in subsection A. of this section, a person may declaw a cat only if:

1. The person performing the procedure is a licensed veterinarian;

2. Anesthesia is administered to the cat during the procedure; and

3. The procedure is medically necessary.

C. As used in this section:

1. Declaw means to surgically remove or alter the claw or claws of a cat by a surgical procedure such as onychectomy or tendonectomy, in order to prevent their normal functioning.

2. Medically necessary means that a procedure is necessary to treat or relieve physical illness, infection, disease, or injury, or to correct a congenital abnormality that is causing or will cause the cat physical harm or pain. Medical necessity does not include cosmetic or aesthetic reasons or reasons of convenience in keeping or handling the cat.

(Ord. No. 71060, § 4, 12-13-2019.)

Chapter 10.16

DEAD ANIMALS

RSMo:

RSMo Ch. 269 (2016) Disposal of dead animals

McQuillin:

24.243, 24.244 Animal carcasses

Sections:

10.16.010 Burying animals within City prohibited.

10.16.020 Removal of buried animals—By lot owner.

10.16.030 Removal of buried animals—By City.

10.16.035 Fee payment by veterinarians for removal of dead animals.

10.16.040 Reporting carcasses—Record book.

10.16.050 Duty of police.

10.16.060 Records open to inspection—Public reporting carcasses.

10.16.070 Disposal permit—Required.

10.16.080 Disposal permit—Application—Bond—Conditions.

10.16.090 Disposal permit—Recall.

10.16.100 Removal method.

10.16.110 Rendering in City—Conditions—Bond.

10.16.120 Carcasses declared nuisances.

10.16.010 Burying animals within City prohibited.

It is unlawful for any person to bury the body of any dead horse, mule, cow, ox, goat, hog, sheep or dog, anywhere within the City limits. (1948 C., Ch. 6, § 44; 1960 C., § 519.010; 1994 C., § 10.16.010.)

10.16.020 Removal of buried animals—By lot owner.

Whenever the Health Commissioner has information that there has been buried on any lot or ground or yard within the City limits the carcass of any dead animal, he may require, by order, the owner, agent or tenant of such lot of ground or yard to have the carcass disinterred and removed to a proper place to be steam rendered. Any person failing to comply with the order of the Health Commissioner shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 45; 1960 C., § 519.020; 1994 C., § 10.16.020.)

10.16.030 Removal of buried animals—By City.

If the carcass of any dead animal is found buried upon any public street or alley in the City, or upon any lot of ground or yard, the owner or agent of which cannot be found, the Health Commissioner shall have the power, if in his judgment he may deem it necessary, to have the same disinterred and delivered to the con-

tractor for the removal of dead animals, the cost of such disinterment to be paid out of the fund for the abatement of nuisances on public property. (1948 C., Ch. 6, § 46; 1960 C., § 519.030; 1994 C., § 10.16.030.)

10.16.035 Fee payment by veterinarians for removal of dead animals.

A fee of fifteen dollars per trip by the refuse department shall be paid to the City by veterinarians for the removal of dead animals. (1994 C., § 10.16.035; Ord. No. 57814, § 1, 1979.)

10.16.040 Reporting carcasses—Record book.

It shall be the duty of all agents and employees of the Division of Health and of the Department of Streets and Sewers and of all policemen to report to the department having charge or control of the removal of dead animals, any carcass or remains of any dead animal which may be found by such person or of which he may be informed as soon as may be possible and within three hours of receiving such knowledge. The department in charge of removal of dead animals shall enter the report in a book to be kept for that purpose and designate therein the locality, as near as the same can be ascertained, where the carcass or remains may be, and also the time when reported. (1948 C., Ch. 6, § 47; 1960 C., § 519.040; 1994 C., § 10.16.040.)

10.16.050 Duty of police.

It shall be the duty of the police to watch for and arrest all persons found violating any of the provisions of this chapter. (1948 C., Ch. 6, § 48; 1994 C., § 10.16.050.)

10.16.060 Records open to inspection—Public reporting carcasses.

The book mentioned in Section 10.16.040 shall at all times be open to public inspection. Any person may report the existence of any carcass or remains of dead animals within City limits to the department having control of the removal thereof, or the same may be reported to any policeman, or at any police station to the person in charge thereof, who shall immediately, or as soon as practicable, report the same to the department in charge or control of the removal thereof, which department shall take immediate measure to effectuate removal. (1948 C., Ch. 6, § 49; 1960 C., § 519.050; 1994 C., § 10.16.060.)

10.16.070 Disposal permit—Required.

No person shall remove, flay, steam render or in any other manner dispose of the carcass of any dead animal which has been abandoned by its owner or has become a nuisance and which is found lying upon the streets, alleys or public places of the City, or on private premises therein without obtaining a permit. (1948 C., Ch. 6, § 50; 1960 C., § 519.060; 1994 C., § 10.16.070.)

McQuillin:

24.254 Rendering

10.16.080 Disposal permit—Application—Bond—Conditions.

Any person desiring to remove the carcass of any dead animal, in whole or in part, lying upon the streets, alleys or public places of the City, or on private premises therein, shall make application to the Board of Public Service for a permit to do so. The permit shall state the kind of carcass or animal to be removed, the place from which the same is to be taken, and the place to which the same is to be taken, which place of destination shall be at least one mile beyond the City limits. The person shall give a bond to the City in the sum of five thousand dollars, conditioned that the carcass of the dead animal shall not be rendered within the City limits or within one mile thereof and that none of the products of the carcass or parts of the carcass of the dead animal shall be employed or sold by them for the purpose of human food, and that all grease or other products rendered or manufactured or packed for use or transported to or from the market or elsewhere shall be branded with a burning brand as follows: "Product of dead animals."

It is unlawful for any person to engage within the City in rendering the carcasses of dead animals found in the streets or other public places or removed from one place to another within the City. (1948 C., Ch. 6, § 51; 1960 C., § 519.070; 1994 C., § 10.16.080.)

McQuillin:

24.254 Rendering

10.16.090 Disposal permit—Recall.

The Board of Public Service may at any time recall the permit required by Section 10.16.070 if any of the rules or orders of the Department of Streets and Sewers in reference thereto are violated. (1948 C., Ch. 6, § 52; 1960 C., § 519.080; 1994 C., § 10.16.090.)

McQuillin:

24.254 Rendering

10.16.100 Removal method.

All dead animals shall be removed in vehicles, well covered with tarpaulins or otherwise, and in the most inoffensive manner possible. Drivers of vehicles conveying carcasses shall not stop on the way unless detained by accident. (1948 C., Ch. 6, § 53; 1960 C., § 519.090; 1994 C., § 10.16.100.)

10.16.110 Rendering in City—Conditions—Bond.

No person shall, in the City, render, flay, cut up, sell or manufacture into human food or any other product whatsoever any carcass or part of any carcass of any dead animal not slain for the purpose of human food nor of any dead animal diseased or in any unsound or unhealthy condition at the time of its killing unless the animal shall have died or have been killed upon the premises upon which it is to be rendered, flayed or cut up. The person shall have on his premises, within suitable enclosure, tight rendering tanks constructed so that all the escape steam shall be conducted into tanks of equal dimensions, filled with water. All surplus steam and gases or vapors that arise after passing through the tanks of water shall be conducted under the fires of the boilers of the establishments. No such establishment shall engage in the business of flaying, cutting up, selling or manufacturing products from the carcasses of dead animals not slain for the purpose of human food or of diseased animals or unsound and unhealthy animals at the time of their killing, unless the persons shall give a bond to the City in the sum of ten thousand dollars, upon the condition that none of the products of the carcasses or the parts of dead animals described in this section, shall be employed or sold by them for the purpose of human food, and that all packages of every kind of grease or other product rendered or manufactured or packed for use or prepared for transportation to or from the market in the City or elsewhere shall be branded with a burning brand with letters at least two inches in height, as follows: "Product of dead animals." (1948 C., Ch. 6, § 54; 1960 C., § 519.100; 1994 C., § 10.16.110.)

10.16.120 Carcasses declared nuisances.

The carcass of any dead animal lying on the streets, alleys or public places of the City, or on private premises therein, and not slain for human food and not removed by the owner or other person entitled thereto within four hours of daylight time after the death of the animal is declared a nuisance and shall be removed and disposed of as provided in this chapter. (1948 C., Ch. 6, § 55; 1960 C., § 519.110; 1994 C., § 10.16.120.)

Chapter 10.20

MISCELLANEOUS PROVISIONS

Editor's Note:

Ordinance 62853 repealed the original Sections 10.20.010 and 10.20.020. Part I of the chapter (contained in Ordinance 62853) was editorially inserted in the place of the two repealed sections.

Sections:

Part I. Raising and Keeping of Certain Animals

10.20.010 Definitions.
10.20.011 Prohibition against keeping more than four animals in a residential zone.
10.20.012 Prohibition against keeping more than four animals in a nonresidential zone unless a kennel permit has first been obtained.
10.20.013 Rules to be promulgated by Health Commissioner—Enforcement, issuance of kennel permits, issuance of noncommercial kennel permits, issuance of small farm animal permits.
10.20.014 Enforcement.
10.20.015 Keeping of certain animals prohibited.
10.20.016 Regulation of animal housing.
10.20.017 Prohibition against cruelty to animals.
10.20.020 Penalty for violation.

Part II. Miscellaneous Provisions

10.20.030 Unclean stables and yards.
10.20.040 Creating nuisance.
10.20.050 Keeping hogs over forty-eight hours.
10.20.060 Pigpens.
10.20.070 Horse defined.
10.20.080 Watering pail on horse-drawn vehicle.
10.20.090 Unauthorized use of horses.
10.20.100 Manner of riding or driving animals.
10.20.110 Turning animals loose.

10.20.120 Leaving animals unfastened or unguarded.
10.20.130 Reserved.
10.20.140 Sale of young fowl.
10.20.150 Rabbits.
10.20.160 Each sale separate offense.
10.20.170. Reserved.

PART I. RAISING AND KEEPING OF CERTAIN ANIMALS

10.20.010 Definitions.

As used in this chapter, the following words and phrases shall have the meaning ascribed to them in this section:

A. "Adequate care" means normal and prudent attention to the needs of an animal, including wholesome food, clean water, shelter and health care as necessary to maintain good health in a specific species of animal.

B. "Adequate control" means reasonable constrain or governance of an animal so that it does not injure itself, any person, another animal, or property.

C. "Aqua Farm" means the farming of fish, crustaceans, mollusks, aquatic plants, algae and other aquatic organisms. Excluded from this definition is Asian Carp which is prohibited within the City of St. Louis.

D. "Commissioner" means the Commissioner of the Health Division of the City of St. Louis Department of Health and Hospitals or their delegate.

E. "Domestic animal" means a dog or cat, including any puppy or kitten, which is more than six weeks old.

F. "Educational agricultural operations" means organizations with agricultural demonstration sites used for the primary purpose of public access for educational opportunities.

G. "Fowl" means chickens, ducks, turkeys, geese, pigeons, quail, pheasants, and other fowl, domesticated or wild, excluding roosters.

H. "Honey bees" means a member of the genus Apis distinguished by the production and storage of honey. Excluded from this definition is Africanized honey bees which is prohibited within the City of St. Louis.

I. "Kennel" means any premises on which more than four animals are domiciled or otherwise kept, which must obtain a graduated business license except for those persons obtaining a noncommercial kennel permit.

J. "Kept" means a large farm animal, a small farm animal, or domestic animals shall be considered to be "kept" on premises if an owner or occupant of that premises, for a period of more than seven days, provides food and/or shelter to the animal, even if such person does not claim ownership of the animal.

K. "Large farm animal" means any cattle, sheep, goat, swine, except for Vietnamese Pot-Bellied Pigs which may be kept pursuant to Section 10.20.015 of this part.

L. "Noncommercial kennel permit" means a permit issued to an owner or keeper of no more than eight (8) domestic animals that are owned or kept for personal pets, and the domestic animals or their offspring are not sold or offered for sale or used for breeding.

M. "Owner" means any person who provides food or shelter to a small farm animal or domestic animal for more than seven consecutive days or who professes to own, keep or harbor an animal.

N. "Pot-bellied pig" means a domestic Vietnamese pot-bellied pig.

O. "Property located within a residentially zoned district" means any parcel of property which the official zoning District Map, as it may be amended by the Board of Aldermen from time to time, shows as being located within an A, B, C, D, or E zone. If a portion of a parcel is within one of the zones, the entire parcel shall be considered to be located within a residentially zoned district for purposes of this part.

P. "Research facility" means a laboratory operated by a college or university in which research is conducted using animals.

Q. "Reptile" means all turtles, lizards, and nonpoisonous snakes except boas over eight (8) feet in length.

R. "Small farm animals" means fowl.

S. "Small farm animals permit" means a permit issued to an owner or keeper of more than eight small farm animals on a parcel of land at least 20,000 square feet in size.

T. "Veterinarian" means an individual licensed to practice veterinary medicine by the State of Missouri.

U. "Veterinary hospital" means a premises at which one or more veterinarians provide treatment for sick and injured animals. (1994 C., § 10.20.010; Ord. No. 70608, § 1, 7-26-2017; Ord. No. 62941, § 2, 1993; Ord. No. 62853, § 2, 1993.)

10.20.011 Prohibition against keeping more than four animals in a residential zone.

A. No person shall keep more than four domestic animals on any parcel of property located within a residentially zoned district, nor shall any person permit or allow more than four domestic animals to be kept or domiciled on any such parcel of property; except that any person may keep more than four domestic animals but no more than eight domestic animals on any parcel of property by obtaining a noncommercial kennel permit from the Health Commissioner.

B. Any person that obtains a noncommercial kennel permit must contain the animals within the confines of the dwelling unit, or if said animals are taken outside or permitted outside, the animals must be kept in a fenced yard or leashed so as to prevent running at large. It shall not be a violation for more than four domestic animals to be domiciled or kept in a multifamily dwelling with more than four dwelling units if the total number of domestic animals in all units is not greater than the total number of units. It shall be the duty of the owner of a multifamily dwelling located within a residentially zoned district to ensure that said dwelling complies with the provisions of this part. Nothing herein shall be construed to repeal the provision of the City's Exotic Animal Ordinance. (1994 C., § 10.20.011; Ord. No. 62941, § 3, 1993; Ord. No. 62853, § 3, 1993.)

10.20.012 Prohibition against keeping more than four animals in a nonresidential zone unless a kennel permit has first been obtained.

No person shall keep more than four domestic animals on any parcel of property located within a nonresidentially zoned district, nor permit or allow more than four domestic animals to be kept on such parcel of property, without first obtaining a kennel permit from the Health Commissioner as provided for in this section of this part; except that it shall not be a violation for more than four animals to be domiciled or kept in a multifamily dwelling with more than four dwelling units located in a nonresidentially zoned district, although no kennel license has been obtained for the premises, if no more than one animal is domiciled or kept in each dwelling unit; and, provided, further, that this requirement shall not apply to the St. Louis Zoological Park, research facilities, veterinarian's offices, veterinary hospitals, and itinerant or temporary shows in which animals are used or displayed. For purposes of this part, a show shall not be considered to be itinerant or temporary if it operates the same location for more than 10 days. (1994 C., § 10.20.012; Ord. No. 62853, § 4, 1993.)

10.20.013 Rules to be promulgated by Health Commissioner—Enforcement, issuance of kennel permits, issuance of noncommercial kennel permits, issuance of small farm animal permits.

A. The Health Commissioner shall promulgate rules and regulations as necessary in the interest of public health, safety and general welfare to interpret and implement the provisions of this part to secure the intent thereof.

B. Persons wishing to obtain a noncommercial kennel permit, a kennel permit, or small farm animal permit shall make application therefore to the Health Commissioner, in writing, on a form prescribed by the Health Commissioner, which shall contain the name of the applicant, the address for which the permit is sought, the address and telephone number at which the applicant can be contacted, the maximum number of animals which the applicant proposes to keep, and any additional information requested by the Health Commissioner. No application for a permit shall be accepted by the Health Commissioner unless accompanied by a $60.00 inspection fee.

C. Upon receipt of an application for a permit, the Health Commissioner shall cause an inspection to be conducted of the premises for which the application is submitted to determine if such premises complies with the provisions of this part and of the rules and regulations promulgated by the Health Commissioner pursuant to Subsection A of this section.

D. No permit shall be issued, except upon a determination by the Health Commissioner that the premises for which an application for such permit has been made complies with the provisions of this part and the rules and regulations promulgated by the Health Commissioner, that the person applying for such permit has obtained or applied for all necessary City licenses, and that in the case of an application for a noncommercial kennel permit or a kennel permit on the premises for which such permit has been sought would not violate applicable provisions of the zoning code.

E. If the Health Commissioner determines that the standards set forth in Subsection D of this section has been complied with, the Health Commissioner shall issue a permit to the applicant. The permit shall specify

the name of the permittee, the address of the facility, and the maximum number of animals which may be housed thereat. In addition, the Health Commissioner may condition the issuance of the permit on compliance by the permittee with additional requirements which the Health Commissioner has determined, with regard to the particular facility, to be necessary to protect human health, safety or welfare and/or the health or welfare of animals to be housed therein.

F. A permit shall be valid for one year from the date on which it is issued. Permits shall be renewable. Persons holding valid permits may apply for renewal thereof no more than thirty days prior to the expiration of such permit. A renewal application shall not be considered by the Health Commissioner unless accompanied by a $60.00 inspection fee. The Health Commissioner shall cause an inspection to be made of the premises prior to renewing the permit. Such renewal shall be valid for one year from the date of expiration of the former permit. (1994 C., § 10.20.013; Ord. No. 70608, § 2, 7-26-2017; Ord. No. 62853, § 5, 1993.)

10.20.014 Enforcement.

A. The provisions of this part shall be enforced by the Health Division and the Police Department upon request of the Health Division. Where an inspection reveals a violation of the provisions of either Sections 10.20.010 or 10.20.011 of this part, the Health Division shall send a notice of violation, by regular United States mail, to the owner and occupants of the premises found to be in violation, which notice shall require that the violation be corrected within 14 days of the date on which the notice is postmarked. If the violation is not corrected within said time, the Health Commissioner shall cause the matter to be referred to the City Counselor for prosecution.

B. The Health Commissioner may periodically cause any premises for which a permit has been issued to be inspected. Failure to allow an inspection of a premises for which a permit has been issued, when so requested by an employee of the Health Division, shall be a violation of this part and be a cause for summary revocation of a permit, without need for a prior hearing. If, upon an inspection, a kennel premises is found not to comply with the rules and regulations promulgated by the Health Commissioner for operation of a kennel, the Health Commissioner may, after opportunity for a hearing, revoke the permit issued therefor. (1994 C., § 10.20.014; Ord. No. 62853, § 6, 1993.)

10.20.015 Keeping of certain animals prohibited.

A. No person shall raise or keep within the City of St. Louis any roosters, Africanized honey bees, Asian Carp or large farm animals. Nor shall any person raise or keep within the City of St. Louis any canine which is the offspring of the mating of a domestic canine with a wolf or coyote. The raising of such animals is hereby declared to be a public nuisance. Notwithstanding the foregoing, the above-specified animals may be raised or kept within biological laboratories, hospitals, slaughterhouses, stockyards, zoological gardens, educational agricultural operations or an itinerant or temporary show.

B. One pot-bellied pig, per parcel of property, may be kept in the City of St. Louis, provided that males over the age of four (4) weeks (28 days) are neutered and females over the age of one hundred twenty (120) days are spayed. All such animals must be proven purebred lineage, and the owner must be able to produce litter papers to verify pedigree. Pigs over the age of one hundred twenty (120) days must be registered and licensed as required of dogs and cats. Fees for such licenses will be the same as required for dogs and cats, and must be obtained from the Health Commissioner. Upon complaint of annoyance, the privilege of keeping a Vietnamese pot-bellied pig will be determined by an investigation by agents of the Health Commissioner, and if deemed an annoyance and nuisance, the pot-bellied pig shall be removed from within the limits of the City of St. Louis, within 48 hours.

C. One fowl is permitted for every 4 square feet of indoor enclosure space and every 10 square feet of outdoor enclosure area provided to the animal, to a maximum of eight fowl per parcel; except that only 2 square feet of indoor enclosure space and four square feet of outdoor enclosure area shall be required per every fowl in biological laboratories, hospitals, pet shops, slaughterhouses, stockyards, zoological gardens, educational agricultural operations, and itinerant or temporary shows.

D. No person shall raise or keep more than eight (8) small farm animals within the City, unless a person owns at least 20,000 square feet of contiguous land, lives within one quarter mile from the property, and obtains a small farm animal permit by the Health Commissioner. Conditioned upon issuance of a small farm animal permit, on lots greater than 20,000 square feet one additional fowl is permitted per 1,000 square feet in excess of 20,000 square feet, to a maximum of 20

small farm animals; except that such small farm animals may be raised or kept in excess of eight small farm animals within biological laboratories, hospitals, pet shops, slaughterhouses, stockyards, zoological gardens, educational agricultural operations, or itinerant or temporary shows.

E. No owner/guardian of any animal shall permit such animals to be found at large on the streets of the City or in any public place or on another person's property. (1994 C., § 10.20.015; Ord. No. 70608, § 3, 7-26-2017; Ord. No. 68463, § 1, 11-5-2009; Ord. No. 62853, § 7, 1993.)

10.20.016 Regulation of animal housing.

The Health Commissioner shall have authority to establish minimum standards and regulations governing the manner of keeping, raising, and sheltering of any animal not prohibited by law on any premises or lot, or in any structure or building within the City, as the Health Commissioner deems necessary to prevent nuisances or insanitary conditions. The following standards are mandated by law:

A. No coops or cages housing bees, Aqua Farm or fowl may be located in front yards.

B. All small farm animals or Aqua Farms shall be provided with a covered, predator-proof coop or cage or other shelter that is thoroughly ventilated, designed to be easily accessed and cleaned, and of sufficient size as determined by the Health Commissioner to permit free movement of the animals. A minimum of two (2) square feet per animal of space inside such a structure is required or (2) pounds of aquatic animal per cubic feet of water or 1 pound per 3.74 gallons of water.

C. A maximum of fifty (50) square feet of space inside the coops shall be permitted.

D. All coops or cages shall not be closer than 1.5 feet from any property line; except when there is a solid-surface fence sufficient to prevent the small farm animal or any part thereof or any waste produced by such animal from passing through to the adjacent property, in which case all coops and cages shall not be closer than 10 feet from all residential dwellings on adjacent parcels.

E. The person maintaining any coop, hive, tank or cage, by such act of maintenance, authorizes the Health Commissioner to at any time inspect a structure or premises and issue any order as may be necessary to carry out the provisions of this section.

F. Small farm animals shall have access to an outdoor enclosure, which may or may not be the lot in its entirety. The outdoor enclosure shall be adequately fenced to contain the small animals within the enclosure and to prevent access by dogs and other predators. The outdoor enclosure shall provide at least four square feet of area for each animal. (1994 C., § 10.20.016; Ord. No. 70608, § 4, 7-26-2017; Ord. No. 62853, § 8, 1993.)

10.20.017 Prohibition against cruelty to animals.

A. As used in this section, "animal" means every living vertebrate other than human beings and insects. All other definitions contained in Section 10.20.010 hereof shall apply to this section.

B. It shall be a violation of this part for any person to:

1. Negligently fail to provide adequate care to, or adequate care of, an animal;

2. Intentionally or purposely kill an animal in any manner not allowed by state statutes;

3. Intentionally, purposely or recklessly cause injury, suffering or pain to any animals;

4. Abandon any animal in any place without making provisions for its adequate care. A feral cat caregiver operating lawfully who releases a feral cat in conjunction with Trap-Neuter-Return is not deemed to have abandoned the feral cat;

5. Overwork or overload an animal, or drive or work an animal unfit to work; or

6. Having ownership or custody of an animal, willfully fail to provide adequate care for, or adequate control of, an animal.

C. The parent or guardian of a minor child is responsible for the adequate care and control of any animal kept, owned by, in the control of, or harbored by the minor child.

D. The Health Commissioner may impound any animal showing evidence of neglect or abuse. (1994 C., § 10.20.017; Ord. No. 69798, § 4G, 7-15-2014; Ord. No. 62853, § 9, 1993.)

10.20.020 Penalty for violation.

Any person convicted of violation of this part shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 10.20.020; Ord. No. 62853, § 10, 1993.)

PART II. MISCELLANEOUS PROVISIONS

10.20.030 Unclean stables and yards.

Whenever any stable, stall, shed or apartment, or any yard or appurtenance thereof, in which any horses, cattle, cows or swine, or any other animals are kept, or any place within the City limits, in which manure or liquid discharges of such animal shall collect or accumulate, is not kept in a cleanly and wholesome condition, so that no offensive smell is allowed to escape therefrom, it shall be deemed a nuisance. Nothing in this section shall include manure deposits upon any private property for the purpose of cultivating the same. (1948 C., Ch. 6, § 1; 1960 C., § 518.010; 1994 C., § 10.20.030.)

Charter:

Art. I § 1 (25) Nuisances

McQuillin:

24.292 Cattle and cattle barns

24.295 Horses and livery stables

10.20.040 Creating nuisance.

No butcher, stock dealer or other person shall collect or keep any cows or hogs in a pen, or otherwise confine any hog in the City so as to create any nuisance. (1948 C., Ch. 6, § 2; 1960 C., § 518.020; 1994 C., § 10.20.040.)

McQuillin:

24.293, 24.294 Hogs and hog pens

10.20.050 Keeping hogs over forty-eight hours.

It is unlawful for any person to keep in any enclosure, or otherwise, any hogs within the City for a period exceeding forty-eight hours, to the annoyance, injury, inconvenience or detriment of any person within the City. (1948 C., Ch. 6, § 3; 1960 C., § 518.030; 1994 C., § 10.20.050.)

McQuillin:

24.293, 24.294 Hogs and hog pens

10.20.060 Pigpens.

All pigpens, lots, stables, yards, sheds or sties, in which pigs are kept within the limits of the City to the annoyance, injury, inconvenience or detriment of any person within the City, shall be deemed a nuisance. (1948 C., Ch. 6, § 4; 1960 C., § 518.040; 1994 C., § 10.20.060.)

McQuillin:

24.293, 24.294 Hogs and hog pens

10.20.070 Horse defined.

"Horse," as used in this chapter, means animals of the equine species. (1994 C., § 10.20.070; Ord. No. 45235, § 1, 1950.)

10.20.080 Watering pail on horse-drawn vehicle.

It is unlawful for any person to drive upon the streets of the City any horse-drawn vehicle not equipped with a pail or bucket of not less than ten-quart capacity suitable for watering and used for no other purpose, or for the owner or person in possession, charge or control of any such vehicle not so equipped to cause or permit the same to be driven upon the streets of the City. (Ord. No. 45235, § 2, 1950; 1960 C., § 516.050; 1994 C., § 10.20.080.)

10.20.090 Unauthorized use of horses.

Any person who shall, in this City, unhitch any animal or drive or ride off with any horse or other animals, without the consent of the owner thereof, shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 5; 1960 C., § 516.010; 1994 C., § 10.20.090.)

10.20.100 Manner of riding or driving animals.

No person shall ride or drive any animal so as to cause such animal, or any vehicle attached thereto, to come in collision with or strike any other object or other person. Any person violating any of the provisions of this section shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 6; 1960 C., § 516.020; 1994 C., § 10.20.100.)

10.20.110 Turning animals loose.

It is unlawful for any person to turn any animal loose in any street or public place within the City limits. Any person violating any of the provisions of this section shall be guilty of a misdemeanor. This section shall not apply to a feral cat caregiver or sponsor who is humanely trapping and returning a feral cat for the purpose of Ordinance 69798 and the Health Code. (1948 C., Ch. 6, § 7; 1960 C., § 516.030; 1994 C., § 10.20.110; Ord. No. 69798, § 4H, 7-15-2014.)

Charter:

Scheme § 35 Regulations as to animals running at large

10.20.120 Leaving animals unfastened or unguarded.

No person shall leave any animal standing in any public place without being fastened or so guarded as to prevent its running away. Any person violating any of

the provisions of this section shall be guilty of a misdemeanor. (1948 C., Ch. 6, § 8; 1960 C., § 516.040; 1994 C., § 10.20.120.)

Cases:

Evidence held to authorize submission to jury the question whether defendant's horses had been permitted to remain unguarded and untied in the street in violation of City ordinance. *Crone v. St. Louis Oil Co.,* 158 S.W. 417 (1913)

10.20.130 Reserved.

Editor's Note:

Ord. No. 70608, § 6, adopted July 26, 2017, repealed § 10.20.130, which pertained to fowl defined and derived from Ord. 47883 § 2, 1956.

10.20.140 Sale of young fowl.

It is unlawful to sell, give or award, or offer for sale, gift or award, eleven or less of any fowl under one month of age. (1960 C., § 513.020; 1994 C., § 10.20.140; Ord. No. 47883, § 2, 1956.)

10.20.150 Rabbits.

It is unlawful to sell, give or award, or offer for sale, gift or award, any live rabbit less than six weeks of age unless such sale, gift or award includes the sale, gift or award of the dam. (1960 C., § 513.030; 1994 C., § 10.20.150; Ord. No. 47883, § 3, 1956.)

10.20.160 Each sale separate offense.

Any person, firm or corporation making a sale, gift or award in violation of the provisions of Sections 10.20.140 and 10.20.150, shall be guilty of a misdemeanor, and upon conviction thereof shall be fined in the sum of not less than five dollars ($5.00) nor more than five hundred dollars ($500.00). Each such sale, gift or award shall constitute a separate offense. (1994 C., § 10.20.160; Ord. No. 70608, § 5, 7-26-2017; Ord. No. 47883, § 4, 1956.)

10.20.170. Reserved.

Editor's Note:

Ord. No. 70608, § 7, adopted July 26, 2017, repealed § 10.20.170, which pertained to the City veterinarian and derived from Ord. 42333.

Chapter 10.24

WILD ANIMALS

Sections:

10.24.010 Prohibited animals designated.
10.24.020 Declaration of nuisance.
10.24.030 Impoundment.
10.24.040 List of institutions to capture, board or dispose of animals.
10.24.050 Disposal of impounded animal—Payment of costs.
10.24.060 Exceptions.
10.24.070 Seller to notify purchaser of this chapter.
10.24.080 Penalty for violation.

10.24.010 Prohibited animals designated.

No person, except as provided in this chapter shall own, keep or harbor within the City of St. Louis, any of the following animals:

A. All species of bears;

B. Leopards;

C. Lions;

D. All types of lynxes;

E. All types of panthers, including, but not limited to, cougars, pumas, jaguars, ocelots, cheetahs, margays, mountain lions, bobcats, hyenas;

F. Tigers;

G. All venomous snakes;

H. Alligators;

I. Crocodiles;

J. Caymans;

K. Chimpanzees;

L. Gorillas;

M. Orangutans;

N. Any constrictor snake of over eight feet in length;

O. Foxes;

P. Wolves;

Q. Coyotes;

R. All non-human primates. (1994 C., § 10.24.010; Ord. No. 62238, § 1, 1991; Ord. No. 58662, § 1, 1982.)

10.24.020 Declaration of nuisance.

Because of the imminent threat to the health, safety, and welfare of the public, the owning, keeping or harboring of any of the animals listed in Section 10.24.010, except as provided herein, is expressly declared a public nuisance. (1994 C., § 10.24.020; Ord. No. 58662, § 2, 1982.)

10.24.030 Impoundment.

Any animal owned, kept or harbored in violation of this chapter may be taken up by agents of the Health

Commissioner and impounded in a shelter designated by the Health Commissioner and therein confined in a humane manner until disposed of in accordance with this chapter. (1994 C., § 10.24.030; Ord. No. 58662, § 3, 1982.)

10.24.040 List of institutions to capture, board or dispose of animals.

The Health Commissioner is hereby directed to prepare a list of available institutions with the means, knowledge, training, and facilities to capture, board and dispose of such animals. The Health Commissioner is hereby authorized and directed to apply to the Comptroller for an emergency contract to hire the appropriate institution when the need to capture, board or dispose of any animal prohibited by this chapter arises. (1994 C., § 10.24.040; Ord. No. 58662, § 4, 1982.)

10.24.050 Disposal of impounded animal—Payment of costs.

A. Any animal impounded under the provisions of this chapter may be disposed of by the Health Commissioner to the custody of an institution deemed to possess the skill, experience, training and facilities to keep such animal in subjection, which will humanely keep such animal, and that agrees to comply with all the provisions of this law and any other federal, state or local law or regulation applicable to the keeping of these animals. In no case, however, shall any animal be released under this section for any scientific research.

B. The cost of capture, boarding and disposal of any animal prohibited by this chapter shall be certified by the Health Commissioner to the Comptroller, who shall verify accuracy of the bill. Such expense shall be a debt legally owed the City of St. Louis by the owner of the prohibited animal and due and payable upon presentment to the owner of the bill by the Comptroller. The City Counselor is hereby authorized to take all necessary actions to pursue the payment of this debt. (1994 C., § 10.24.050; Ord. No. 58662, § 5, 1982.)

10.24.060 Exceptions.

Due to the skill, experience, training and facilities available to them, the following are specifically exempted from the provisions of this chapter and may own, hold and keep any of the animals listed in Section 10.24.010; the St. Louis Zoological Park, any universities offering graduate education, and any circuses appearing in the City for less than two weeks in any year. (1994 C., § 10.24.060; Ord. No. 58662, § 6, 1982.)

10.24.070 Seller to notify purchaser of this chapter.

Any person selling any of the animals prohibited by this chapter within the City of St. Louis shall fully notify any purchaser in writing of the provisions of this chapter. (1994 C., § 10.24.070; Ord. No. 58662, § 7, 1982.)

10.24.080 Penalty for violation.

Every person convicted of a violation of this chapter shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars and by imprisonment for not more than ninety days or by both such fine and imprisonment. Each day that any violation of this chapter shall continue shall constitute a separate offense. (1994 C., § 10.24.080; Ord. No. 58662, § 8, 1982.)

Chapter 10.30

TRAP-NEUTER-RETURN (TNR) OF FERAL CATS

Sections:

10.30.010 Feral cats definitions.
10.30.020 Feral cat colonies.
10.30.030 Disposition of feral cat colony cats.

10.30.010 Feral cats definitions.

A. "Domesticated cat" means a cat that is socialized to humans and is appropriate as a companion to humans. The responsibilities of owners of domesticated cats are set forth in Ordinances 67799, 66384, 62941, and 62853 as codified in this title of the Revised Code of the City of St. Louis.

B. "Ear tipping" means straight-line cutting of the tip of the left ear while the cat is anesthetized.

C. "Feral cat" means a cat that is (i) born in the wild or is the offspring of an owned or feral cat and that is not socialized, or (ii) is a formerly owned cat that has been abandoned and is no longer socialized.

D. "Feral cat caregiver" means any person other than an owner who provides food, water or shelter to, or otherwise cares for a feral cat.

E. "Feral cat colony" means any group of cats that congregates, more or less, together as a unit. Although not every cat in the colony may be feral, any nonferal cats that congregate with a colony shall be deemed to be part of it.

F. "Feral cat colony caregiver" means any feral cat caregiver who is approved by a sponsor to care for a feral cat colony.

G. "Nuisance" for purposes of this chapter, means conduct by stray or feral cats that disturb the peace. Stray or feral cats may create a nuisance by (a) habitually or continually howling, crying or screaming, or (b) habitually and significantly destroying, desecrating or soiling property against the wishes of the owner of the property.

H. "Sponsor" is any animal welfare provider that agrees to comply with the requirements of this chapter for sponsors provides written notice to and is approved by the Department of Health and the majority of any other approved sponsor(s).

I. "Stray cat" means a cat that is regularly off the property of the owner, is not under the physical control and restraint of the owner and/or has no apparent owner.

J. "TNR" means trap, neuter and return.

K. "TNR program" means a program in which feral and stray cats are trapped, neutered or spayed, vaccinated against rabies, and returned to the location where they congregate, in accordance with this chapter.

L. "TNR Task Force" is an advisory task force comprised of TNR experts appointed by and at the discretion of the Director of Health to advise the Health Department on current TNR practices and policies. (1994 C., § 10.30.010; Ord. No. 69798, § 1, 7-15-2014.)

10.30.020 Feral cat colonies.

A. Feral cat colonies shall be permitted and feral cat colony caregivers shall be entitled to maintain and care for feral cats by providing food, water, shelter and other forms of sustenance, provided that the feral cat colonies are registered with a Health Department approved sponsor, as defined in Section 10.30.010, and that the feral cat colony caregiver takes all appropriate and available steps to meet the terms and conditions of this chapter.

B. Sponsorship of Colony TNR Programs. Any animal welfare group shall be eligible to act as a sponsor, if approved by the City Department of Health and the majority of any other approved sponsor(s). Any animal welfare group intending to undertake the responsibilities of sponsor shall so advise the Department in writing and provide its address and telephone number, and electronic mail address.

C. Sponsor requirements. It shall be the duty of the sponsor to:

1. Review, and in its discretion, approve of feral cat colony caregivers.

2. Help to resolve any complaints over the conduct of a feral cat colony caregiver or of cats within a colony.

3. Maintain records provided by feral cat colony caregivers on the approximate size and location of the colonies by zip code, as well as the vaccination and spay and neuter records of cats in the sponsor's colonies.

4. Provide, at a minimum, written educational training for all caregivers addressing uniform standards and procedures for colony maintenance.

5. Report annually to the Department of Health:

a. The approximate number of cats in colonies;

b. The approximate location of all cats in colonies;

c. The number of cats in colonies vaccinated, spayed and neutered; and

d. The number of cats and kittens from colonies placed in permanent homes.

6. Use due consideration to prevent feral cat colonies from being maintained on lands managed for wildlife or other natural resources, such as, but not limited to, nature preserves, where the presence of a feral cat colony is a proven threat, and to avoid the taking of rare, threatened or endangered species under state and federal law.

7. Provide any forms or other documentation necessary to allow feral cat colony caregivers to receive any public or private subsidies, medical care or other forms of assistance for their feral cat colonies which may be available to them.

8. The Department of Health has the right to the address of a colony where feral cat colony caregivers have regularly failed to comply with this chapter, where the sponsor has been unable to resolve a nuisance behavior situation, and/or where the sponsor or caregiver has refused to work with the TNR Task Force and Department of Health. (1994 C., § 10.30.020; Ord. No. 69798, § 2, 7-15-2014.)

10.30.030 Disposition of feral cat colony cats.

A. The Department of Health, its designee, or a licensed veterinarian, in accordance with the enforcement of this chapter and the entire Health Code, shall be the only persons permitted to destroy a feral cat. No person may knowingly poison or cause to be poisoned,

or cause the destruction by other means, of a feral cat. The only exception will be by written order of the Health Commissioner for the purpose of controlling diseases which have been medically proven to be transmissible to humans or other animals and only when all other methods and means have been exhausted. Such an order shall name a person or persons to conduct this course of action, specify any products to be used, give the boundaries of the area involved and specify the precautionary measures to be employed to ensure the safety of humans and other animals. Any drugs used for euthanasia shall be by or under the direction of a licensed veterinarian.

B. Any ear tipped cats found or turned in to any City animal shelter, animal welfare organization or veterinarian may notify the City Department of Health or sponsor(s), if known, via mail or telephone.

C. The Department of Health, or its designee, in order to encourage the stabilization of the feral cat population in the City of St. Louis, shall have the following rights:

1. The right to direct that a sponsor remove a feral cat that is creating a nuisance if the sponsor has failed to adequately resolve the nuisance within 90 days after being given written notice thereof. In the event that the department directs the sponsor to remove the cat, the sponsor shall have 30 days to do so. Failure of the sponsor to remove the cat within said time period (or such longer time as the department may specify) shall constitute grounds for the department to remove the cat.

2. Animal Control Officers (ACO), Police Officers or sponsors shall investigate any nuisance complaint allegedly caused by a feral cat.

3. In the event that an ACO or a Police Officer finds that a feral cat or feral cat colony has created a nuisance, the ACO or Police Officer shall advise the department and sponsor in writing of the nuisance. If the sponsor fails to correct the nuisance, the department shall have the right to remove the cat.

4. If a caregiver cannot be found for all or parts of a colony, the sponsor shall make reasonable efforts to relocate the cat(s) to another location.

5. If a sponsor fails to perform its duties as set forth in this chapter, the department may notify the sponsor that it must comply with the requirements of this chapter within 30 days. If the sponsor fails to do so, the department shall remove this sponsor from the list of department approved sponsors, and shall reassign the feral cat colonies from this sponsor to another sponsor.

6. If a feral cat colony caregiver regularly fails to comply with this chapter, the sponsor may notify the feral cat colony caregiver that he or she has 30 days to make all reasonable efforts to fulfill the responsibilities defined in this chapter. If the feral cat colony caregiver fails to comply within that time period, the sponsor may identify and obtain replacement feral cat colony caregivers for the feral cat colonies of the noncompliant caregiver. If no other feral cat colony caregiver can be found within 30 days, the sponsor may notify the department, and the department may reassign colony to another sponsor, undertake TNR or humanely remove all, or parts of, the feral cat colonies and dispose of them in accordance with this chapter and the Health Code of the City of St. Louis. (1994 C., § 10.30.030; Ord. No. 69798, § 3, 7-15-2014.)

Title 11

HEALTH AND SAFETY

Charter:

Art. I § 1(25) Nuisances, etc.

Art. I § 1(26) Location of businesses and occupations.

Art. I § 1(29) Construction of buildings and maintenance of premises.

Art. XIII § 14-C Department of health and hospitals.

Art. XIII § 15(e) Department of public safety—Building commissioner.

RSMo:

RSMo Title XII (2016). Public health and welfare.

Chapters:

11.02 Solid Waste Disposal

11.03 Solid Waste Management District

11.04 Weeds

11.05 Relocation Policy

11.06 Redevelopment Procedures for Blighted Areas

11.07 Procedures for Obsolete Areas

11.08 Rodent, Insect and Pest Control

11.10 Public Drinking Fountains

11.12 Odorizing Gas

11.14 Transportation of Certain Substances on Streets

11.15 Transportation of Radioactive Materials

11.16 Privies

11.18 Littering

11.20 Reserved

11.22 Lead Poisoning

11.24 Dangerous Drugs, Medicines and Insecticides

11.26 Fluoride

11.28 Reserved

11.30 Rendering Plants

11.31 Smoke Free Air Act

11.32 Smoking

11.33 Conduct on Public Transportation

11.34 Air Pollution

11.35 Reserved

11.36 Food Handling and Display

11.38 Food Inspection and Supervision

11.40 Adulteration

11.42 Restaurants

11.44 Markets

11.46 Milk

11.48 Meat and Meat Products

11.50 Fish and Fish Products

11.51 Frozen Desserts

11.52 Comfort Stations

11.54 Reserved

11.56 Disease and Disease Prevention

11.58 Nuisances

11.59 Prescription Drug Monitoring Program (PDMP)

11.60 Drugs

11.61 Enforcement of Marijuana Laws

11.62 Births, Deaths and Burials

11.64 Hazardous Substance Cleanup

11.66 Open Storage of Sand and Gravel

11.68 Commercial Blood Vendor Registration

11.70 Tire Storage

11.72 Rooming House or Hotel Detrimental to Neighborhood

11.74 Diphenhydramine

11.75 Ephedrine or Pseudo Ephedrine

11.76 Reserved

11.77 Alternative Nicotine Products and Vapor Products

11.78 **Laser Beams**

11.79 **Swimming Pool Regulations**

11.80 **Satellite Dish Antennas, Satellite Antennas or Other Similar Devices**

11.81 **Ground Water**

11.85 **Yard Waste**

11.90 **Demolition by Neglect**

11.95 **Enforcement of Code Violations**

11.100 **Unpaid Leave for Victims of Domestic Violence, Sexual Violence, and Stalking**

11.105 **Residential Landlord-Tennant Relations; Evictions**

11.106 **Right to Counsel Program for Residential Tenants Facing Eviction**

11.110 **Recreational Fires**

11.115 **Conversion Therapy**

Chapter 11.02

SOLID WASTE DISPOSAL

Editor's Note:

Ordinance 59121 repealed the following provisions of Chapter 11.02:

Part IV, Contracts for Disposal of Garbage, §§ 11.02.370—11.02.400, codified from 1948 C. Ch. 27 § 24 and 1960 C. §§ 283.010—283.070.

Part V, Sale of Rubbish, §§ 11.02.405—11.02.420, codified from Ordinance 48149 §§ 1—4, 1956 and 1960 C. §§ 285.010—285.040.

Part VI, Private Dumps, §§ 11.02.425—11.02.460, codified from Ordinances 58817 § 1, 1983; 44740, 1948 and 1960 C. §§ 287.010—287.070.

Charter:

Art. I § 1(22) Sewage, ashes and garbage

RSMo:

RSMo 260.200 et seq. (2016). Solid waste disposal

McQuillin:

24.242 *et seq.* Control, collection and disposal of waste

Sections:

Part I. Definitions

11.02.005 **Generally.**

11.02.010 **Abatement.**

11.02.015 **Collection.**

11.02.020 **Demolition landfill.**

11.02.025 **Demolition material.**

11.02.030 **Dump.**

11.02.035 **Dwelling unit.**

11.02.040 **Garbage.**

11.02.045 **Hauler.**

11.02.050 **Inert matter or material.**

11.02.055 **Inert matter disposition site.**

11.02.060 **Mechanical collection.**

11.02.065 **Nonresidential premises.**

11.02.070 **Person.**

11.02.075 **Prohibited refuse.**

11.02.077 **Recyclables.**

11.02.080 **Refuse.**

11.02.085 **Residential premises.**

11.02.090 **Roll-out cart.**

11.02.095 **Sanitary landfill.**

11.02.100 **Scavenging.**

11.02.101 **Solid waste transfer station.**

11.02.102 **Yard waste.**

Part II. Refuse Collection and Disposal Generally

11.02.105 **Division of Refuse Collection.**

11.02.110 **Duties of Refuse Commissioner.**

11.02.115 **Disposal programs with other communities.**

11.02.120 **Services universal.**

11.02.125 **Collection and disposal—Preparation requirement—Schedule.**

11.02.127 **Solid waste services fee.**

11.02.130 **Collection from nonresidential premises authorized when.**

11.02.135 **Containers provided at Refuse Commissioner's discretion.**

Part III. Refuse Container Requirements

11.02.140 **Refuse storage and collection—Prohibited containers.**

11.02.145 **Permitted containers.**

11.02.150 **Container requirements.**

11.02.155 **Prohibited refuse.**

11.02.160 **Garbage preparation.**

11.02.165 Owner and occupant responsibility.

11.02.170 Number posting on alley entrance.

11.02.175 Confiscation of nonusable containers.

11.02.180 Confiscation of nonusable container—Exception.
11.02.185 Scavenging prohibited when.
11.02.190 Prohibited actions.
11.02.195 Non-City containers—Usage.
11.02.200 City containers—Usage.
11.02.205 City containers—Use required when.
11.02.210 City containers—Number and location.
11.02.215 City containers—Use of closest required.
11.02.220 City containers—Moving prohibited.
11.02.225 City containers—Authorized use.
11.02.230 City containers—Damaging prohibited.
11.02.235 City containers—Prohibited items—Placement.
11.02.240 City containers—Responsibility for damage to container.
11.02.245 Roll-out cart use.
11.02.250 Handicapped persons waiver.
11.02.255 Collection from nonresidential premises.
11.02.260 Public receptacles.

Part IV. Garbage Collection Permits

11.02.265 Permits—Required—Collection, hauling and disposal by persons other than Refuse Commissioner.
11.02.270 Permits—Term.
11.02.275 Permits—Application—Filing.
11.02.280 Permit—Application.
11.02.285 Permit—Vehicle inspection.
11.02.290 Permit—Fees.
11.02.315 List of permittees.
11.02.320 Vehicle—License required.
11.02.330 Vehicle permit—Sticker issuance and display.
11.02.340 Sticker—Nontransferable.

Part V. Sanitary and Demolition Landfills

11.02.350 State permit required.
11.02.355 Board of Public Service permit required.
11.02.360 Sign posting required.

Part VI. Violations and Enforcement

11.02.365 Violations—Designated.
11.02.370 Penalty for violations.
11.02.375 Reserved.
11.02.380 Enforcement—Procedure.

PART I. DEFINITIONS

Prior history: Ords. 44732, 45147, 51398, 56917 § 1; 1948 C. Ch. 27 §§ 2, 6; 1960 C. §§ 280.010—280.320

11.02.005 Generally.

For the purpose of this chapter, as amended, the following terms, phrases, words and their derivatives shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory. (1994 C., § 11.02.005; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(part), 1984.)

11.02.010 Abatement.

"Abatement" means the correction of a condition which constitutes or evidences a violation of this chapter, as amended. (1994 C., § 11.02.010; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(1), 1984.)

11.02.015 Collection.

"Collection" means removal of refuse from its place of storage for the purpose of transporting it to its place of processing or disposal. (1994 C., § 11.02.015; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(2), 1984.)

11.02.020 Demolition landfill.

"Demolition landfill" means a solid waste disposal area used for the controlled disposal of demolition wastes, construction materials, brush, wood wastes, tires, inert plastics, soil, rock, concrete and nondecomposable inert solids insoluble in water. (1994 C., § 11.02.020; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(3), 1984.)

11.02.025 Demolition material.

"Demolition materials" means materials or substances produced by demolition of a structure. (1994 C., § 11.02.025; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(4), 1984.)

11.02.030 Dump.

"Dump" means to discard or place refuse, demolition materials, or inert matter, other than in a refuse container for storage before collection. Dump does not mean delivery of inert matter for construction purposes to a construction site for which a building permit has been issued by the Building Commissioner. (1994 C., § 11.02.030; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(5), 1984.)

11.02.035 Dwelling unit.

"Dwelling unit" means a room or rooms within a building forming a habitable unit with cooking, living, sanitary and sleeping facilities. (1994 C., § 11.02.035; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(6), 1984.)

11.02.040 Garbage.

"Garbage" means refuse in the form of discarded food or produce. (1994 C., § 11.02.040; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(7), 1984.)

11.02.045 Hauler.

"Hauler" means an owner or lessee of one or more vehicles used to transport refuse, inert matter, or demolition materials to or from points with the City for a fee or other consideration, or in furtherance of such owner's or lessee's business or occupation. (1994 C., § 11.02.045; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(8), 1984.)

11.02.050 Inert matter or material.

"Inert matter or material" means natural substances such as dirt or sand the form and structure of which does not naturally change. (1994 C., § 11.02.050; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(9), 1984.)

11.02.055 Inert matter disposition site.

"Inert matter disposition site" means a site approved pursuant to this chapter for indefinite placement of inert matter. Inert matter disposition site does not mean a construction site for which a building permit has been issued by the Building Commissioner. (1994 C., § 11.02.055; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(10), 1984.)

11.02.060 Mechanical collection.

"Mechanical collection" means nonmanual emptying of refuse containers in refuse hauling vehicles. (1994 C., § 11.02.060; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(11), 1984.)

11.02.065 Nonresidential premises.

"Nonresidential premises" means all premises which are not residential premises as defined herein. (1994 C., § 11.02.065; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(12), 1984.)

11.02.070 Person.

"Person" means individuals, corporations, partnerships or any legal entity. (1994 C., § 11.02.070; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(13), 1984.)

11.02.075 Prohibited refuse.

"Prohibited refuse" means matter which, while refuse, is not to be placed in any refuse container from which the Refuse Division collects refuse and is not to be collected by the Refuse Division. Prohibited refuse includes: explosives, highly flammable or dangerous material, including gun powder and photographic plates, substances saturated with inflammable petroleum products, poisons, acids, pathological, biological and infectious wastes; substances which constitute hazardous, toxic or special waste under federal or state laws or regulations; radioactive materials; human or animal bodies or parts thereof; human or animal waste; major appliances, including, but not limited to, refrigerators, freezers, stoves, ovens, dishwashers, microwave ovens, air conditioners and television sets; lead acid automotive, truck or boat batteries; motor oil; tires; yard waste and such other matter as the Refuse Commissioner may designated by rule or regulation. After January 1, 1992, yard waste, as such term is defined by this chapter, as amended, shall constitute prohibited refuse. (1994 C., § 11.02.075; Ord. No. 64116, § 1(part), 1997; Ord. No. 62276, § 1, 1991; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(14), 1984.)

11.02.077 Recyclables.

"Recyclables" means those materials recovered from the solid waste stream and shall include newspapers, telephone books, corrugated cardboard, paperboard, mixed office paper, magazines and catalogues, aluminum cans, steel food cans, steel aerosol cans, glass bottles (clear, green, and brown) and No. 1 and No. 2 plastic bottles and jugs. (1994 C., § 11.02.077; Ord. No. 64116, § 1(part), 1997.)

11.02.080 Refuse.

"Refuse" means all putrescible and nonputrescible combustible and noncombustible solid wastes, including, but not limited to, garbage, ashes, paper, wrap-

pings, cigarette and cigar butts, cardboard, cans, wood scraps, loose glass in any form, bedding, metal, household items, crockery, plastic, industrial wastes, prunings, grass clippings, weeds, leaves, general yard and garden wastes, cut or fallen trees and shrubs, and loose lumber. (1994 C., § 11.02.080; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(15), 1984.)

11.02.085 Residential premises.

"Residential premises" means buildings used by human beings for exclusively residential purposes, or dwelling units so used within a building containing both such dwelling units and nonresidential premises, and includes single-family residences, flats, apartments, condominiums, convents, parsonages, and rectories. Residential premises does not mean hotels, motels, or property (including units or parts of a building which are used for nonresidential purposes, whether or not the building also contains dwelling units used by human beings for exclusively residential purposes) used for business, fraternal, commercial, industrial, manufacturing, or institutional purposes, or for any purpose not exclusively residential, except buildings owned, and used, or occupied by the City. (1994 C., § 11.02.085; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(16), 1984.)

11.02.090 Roll-out cart.

"Roll-out cart" means a wheeled receptacle for refuse provided by the Refuse Commissioner. (1994 C., § 11.02.090; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(17), 1984.)

11.02.095 Sanitary landfill.

"Sanitary landfill" means a solid waste disposal area employing an engineered method of disposing of solid wastes on land in a manner that minimizes environmental hazards by spreading the solid wastes in thin layers, compacting the solid wastes to the smallest practical volume and applying cover material at the end of each operating day. (1994 C., § 11.02.095; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(18), 1984.)

11.02.100 Scavenging.

"Scavenging" means the physical examination of refuse in a refuse container or the removal of items from a refuse container by persons other than Refuse Division, Health Division, Building Division, Police Department or Fire Department personnel and persons authorized under this chapter to use the refuse container. (1994 C., § 11.02.100; Ord. No. 64116, § 1(part), 1997; Ord. No. 60292, § 1(part), 1987; Ord. No. 59121, § 2(19), 1984.)

11.02.101 Solid waste transfer station.

"Solid waste transfer station" means a site or facility which accepts solid waste for temporary storage, or consolidation and further transfer to a waste disposal, processing or storage facility. Transfer station includes, but is not limited to, a site or facility where waste is transferred from: a rail carrier, motor vehicle or water carrier to another carrier, if the waste is removed from the container or vessel. A licensed residential waste hauling operation which involves the transportation, storage, and disposal of nonputrescible banned landfill items (i.e., white goods, tires, etc.) as part of the service provided to its customers shall be exempt from transfer station status provided the storage of all collected material does not exceed thirty days and does not create a public health or aesthetic nuisance. In addition, the transfer of waste directly from one waste hauling vehicle/container to another waste hauling vehicle/container, in the regular operation of providing waste collection service, shall be exempt from transfer station status; providing, however, that all such vehicles and containers are licensed by St. Louis City under the same company name or its subsidiary. (1994 C., § 11.02.101; Ord. No. 66244, § 1, 2004.)

11.02.102 Yard waste.

"Yard waste" means leaves, grass clippings, yard and garden vegetation, and Christmas trees. The term does not include stumps, roots or shrubs with intact root balls. (1994 C., § 11.02.102; Ord. No. 64116, § 1(part), 1997.)

PART II. REFUSE COLLECTION AND DISPOSAL GENERALLY

Prior history: Ords. 44732, 48029, 48173, 49507, 51398, 55812, 56917 § 1; 1948 C. Ch. 27 §§ 3—5, 7—9, 15, 16, 18—22; 1960 C. §§ 281.010—281.200

City Counselor Ops.: 8016, 8017, 8068

McQuillin:

24.242 Collection and disposal

11.02.105 Division of Refuse Collection.

There shall be in the Department of Streets a Division of Refuse Collection. The Commissioner of Refuse Collection, who shall be appointed by the Director of Streets, shall be the head of the Division of

Refuse Collection. The Commissioner of Refuse Collection is sometimes hereinafter referred to as the Refuse Commissioner; the Division of Refuse Collection is sometimes hereinafter referred to as the Refuse Division. (1994 C., § 11.02.105; Ord. No. 59121, § 3(a), 1984.)

11.02.110 Duties of Refuse Commissioner.

The Refuse Commissioner shall be in charge of the collection and disposal of refuse. He shall appoint all officers and employees in the Refuse Division, and he shall establish such rules and standards and may proceed in any manner as may be necessary for the effective execution, administration, and enforcement of all ordinance provisions relating to the Refuse Division and the storage, collection and disposal of refuse. (1994 C., § 11.02.110; Ord. No. 59121, § 3(b), 1984.)

11.02.115 Disposal programs with other communities.

The Refuse Commissioner may participate in refuse disposal programs with other communities, political subdivisions, and private persons pursuant to the City Charter and other applicable provisions of law. (1994 C., § 11.02.115; Ord. No. 59121, § 3(c), 1984.)

City Counselor Ops.: 101041

11.02.120 Services universal.

All services performed by the Refuse Division under this chapter shall be provided without regard to race, creed, color, national origin, or geographic area. (1994 C., § 11.02.120; Ord. No. 59121, § 4(a), 1984.)

11.02.125 Collection and disposal—Preparation requirement—Schedule.

The Refuse Division shall collect and dispose of refuse from residential premises when it is prepared and placed for collection as provided herein. Collections shall be made at regular intervals on collection days to be determined by the Refuse Commissioner, who is authorized to determine the points of collection when they are not designated in this chapter. (1994 C., § 11.02.125; Ord. No. 59121, § 4(b), 1984.)

11.02.127 Solid waste services fee.

A. *Findings.* It is hereby found, determined and declared by the Board of Aldermen of the City of St. Louis that in order to maintain the health and welfare of the population of the City by preventing the accumulation of solid waste, including yard waste, through the collection and disposal and/or recycling of such waste by the City, it is necessary and appropriate for the City to provide solid waste services to some dwelling units, as defined herein, and to charge a solid waste services fee for such solid waste services provided to such dwelling units to offset a portion of the cost to the City of providing these services.

B. *Definitions.*

Customer. As used in this section, the term "customer" means the recipient of a bill for water service from the City of St. Louis for one or more dwelling units.

Dwelling Unit. As used in this section, the term "dwelling unit" means a single-family home and any single unit in a multiple-family or mixed use structure, including a condominium unit, which provides complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation. The term "dwelling unit" shall also include convents, parsonages and rectories, and other facilities where individuals, families or households reside.

Owner. As used in this section, the term "owner" means any person, agent, operator, firm, corporation or any other legal entity recorded in the official records of the City of St. Louis as holding legal or equitable interest in and/or title to a property or as representing the holder of interest in or title to a property or otherwise having a legal or equitable interest in a property, including the guardian of the estate of any such person, the executor, personal representative, or administrator of the estate of such person, or the trustee of a bankruptcy in which a property is an asset.

Private Solid Waste Contractor. As used in this section, the term "private solid waste contractor" means a business that provides solid waste collection equipment and solid waste disposal services for a property and possesses a current hauling permit from the City pursuant to Chapter 11.02, Part IV, of the Revised Code of the City of St. Louis.

Property. As used in this section, the term "property" means any parcel of real estate, including a condominium parcel, recorded in the official records of the City of St. Louis.

Solid Waste Services. As used in this section, the term "solid waste services" shall mean regular solid waste collection and disposal services and the provision of equipment necessary for the provision of such services, which services may include separate collection of recyclable waste and the sale or transfer of some or all

of such waste to businesses who will recycle such waste for other uses and/or convert such waste to energy rather than placing it in landfills. Solid waste services for which solid waste services fees are charged pursuant to this section shall be provided by and/or through the Refuse Division of the City of St. Louis in accordance with regulations or procedures established by the Refuse Commissioner.

C. *Service Fee.* Beginning immediately, a solid waste services fee of fourteen dollars ($14.00) per month for each dwelling unit shall be charged, as provided herein, in the City of St. Louis for solid waste services provided by or through the City to such dwelling units. The Refuse Division may increase such solid waste services fee on each July 1 (the beginning of each City fiscal year), provided that (a) no such increase shall be effective unless and until the Board of Aldermen approves such fee increase by resolution or ordinance; and (b) the amount of solid waste services fees charged shall not exceed the cost. Revenues from solid waste services fees shall be used only to provide solid waste services.

D. *Billing Periods and Due Dates for Service Fee Payments.* Solid waste services fees for solid waste services as set forth in Subsection C of this section shall be due and payable at such times and for such billing periods as determined by the Refuse Commissioner and the Collector of Revenue.

E. *Exclusions from Payment of Solid Waste Services Fees; Penalties for Failure to Provide Private Solid Waste Collection/Disposal Services/Equipment as Represented.* Solid waste service fees shall not be charged with respect to a dwelling unit when evidence, satisfactory to the Refuse Commissioner, has been provided to demonstrate that such dwelling unit receives solid waste services from a private solid waste contractor and the Refuse Commissioner has verified that, in the opinion of the Refuse Commissioner, such dwelling unit is equipped with appropriate and adequate private solid waste collection equipment and that the solid waste services provided by such private solid waste contractor are adequate. The Refuse Commissioner shall determine the adequacy of such privately-provided solid waste services.

The Refuse Commissioner shall continue to verify the situation set forth in the foregoing paragraph from time to time, as determined by the Refuse Commissioner, and may take such actions as the Refuse Commissioner deems appropriate if the solid waste services cease to be provided to the applicable dwelling units by a private solid waste contractor. The City of St. Louis Building Division shall cooperate with the Refuse Commissioner in determining whether a dwelling unit has appropriate and adequate private solid waste collection equipment and solid waste services.

Failure to provide such private equipment and solid waste services if the Refuse Commissioner has been notified that a dwelling unit receives such service and the Refuse Commissioner has accepted such notification and excluded such dwelling unit from solid waste services fees pursuant to this section shall be a violation of this section. If the Refuse Commissioner or the Building Division finds that a dwelling unit claimed to have solid waste services provided by a private solid waste contractor does not have appropriate and adequate private solid waste collection equipment and solid waste services available, the Building Division shall issue a violation notice to the owner of the property on which the dwelling unit is located and to the applicable customer. Each day such violation continues until such owner or customer corrects such violation by providing solid waste disposal services through a private solid waste contractor or arranging, with the Refuse Commissioner's consent and in the Refuse Commissioner's discretion, for the provision of solid waste services by the City is a separate offense punishable by a fine of up to $500.00 per dwelling unit per day.

The Building Division shall notify the Refuse Commissioner upon the issuance of a violation notice as provided in this section.

F. *Billing Agent for the City; Billing Process.* The Collector of Revenue (hereinafter "Collector") shall be the City's billing agent for solid waste services fees and is hereby directed to prepare and distribute bills for solid waste services fees and to collect solid waste services fees as provided herein. The Collector shall receive compensation for such billing and collection services as permitted by law and as provided by agreement between the Collector and the Refuse Division. The Refuse Division is hereby authorized to enter into an agreement with the Collector for such billing and collection services. The Collector shall, pursuant to such agreement, charge solid waste services fees to customers for dwelling units for which such customer receives water service and solid waste services; the Collector shall not charge solid waste service fees to customers for dwelling units that have been excluded from such solid waste services and solid waste service fees pursu-

ant to Subsections E and I of this section. The Collector may include solid waste services fees and water service fees and other fees and/or charges on the same billing statement, but shall separately state the solid waste services fees from the water service fee and any other fee or charge.

G. *Collection of Unpaid Bills.* Failure to pay solid waste services fees when due shall be a violation of this section.

When any solid waste service fees for any dwelling unit billed pursuant to this section remain unpaid, in whole or in part, when ninety (90) or more days after the payment due date have elapsed, the Collector may proceed to file a lien upon the property on which such dwelling unit is located for the amount of delinquent solid waste services fee payments. The Collector shall notify the property owner via certified mail that a lien will be filed on the property no less than ten (10) days prior to the filing of the lien.

The Collector may also collect delinquent solid waste services fee payments using any other remedy provided for under Missouri law.

The Collector shall have power to sue any customer and any owner of property on which dwelling unit is located in a civil action to recover any sums due for solid waste services fees, plus a reasonable attorney's fee to be fixed by the court.

H. *Violations and Penalties for Failure to Pay Fees, Unauthorized Use of City Solid Waste Services, Failure to Provide Solid Waste Services.* Before issuing a certificate of inspection under Section 25.56.050 of the Revised Code of the City of St. Louis, for any dwelling unit for which the solid waste services fee is being charged, the Building Division shall verify that solid waste services fees for the dwelling unit are paid up to date. If the solid waste services fee for such dwelling unit has not been paid, no certificate of inspection shall be issued until all delinquent solid waste services fees with respect to the property on which such dwelling unit is located are paid, and it shall be a violation of this section and the Building Division may issue a notice of such violation to the owner of the property in which the dwelling unit is located if such dwelling unit is occupied before all delinquent solid waste service fees are paid. Each day such violation continues is a separate offense punishable by a fine of up to $500.00 per day.

Except as expressly permitted by the Refuse Commissioner, it shall be a violation of this section for any person or business to use City solid waste services and associated City equipment for any solid waste that does not originate in dwelling units for which a customer pays solid waste services fees. Each such violation shall be a separate offense, punishable by a fine of up to $500.00.

It shall be a violation of this section for any person, business, or owner to fail to provide adequate solid waste collection and disposal services for any property that produces solid waste. If solid waste services are not provided to such property and paid for pursuant to this section, such solid waste services must be furnished by a private solid waste contractor. The Refuse Commissioner shall determine the adequacy of such privately-provided solid waste services. Each day such violation continues shall be a separate offense, punishable by a fine of up to $500.00 per day.

I. *Regulations.* The Refuse Commissioner may issue regulations for the administration of this section, provided such regulations are not inconsistent with this section and are approved by the City Counselor. Such regulations may include provisions for determining which dwelling units receive solid waste services from the City and which dwelling units do not, and provisions for excluding from solid waste services and solid waste services fees, at the Refuse Commissioner's discretion, dwelling units located on a property where large numbers of other dwelling units are also located, dwelling units where specialized equipment is required for collection and disposal, and dwelling units not located on a City solid waste collection route. Such regulations may include provisions for excluding buildings and dwelling units vacant for a period of more than ninety (90) days from the payment of solid waste service fees or crediting solid waste services fees paid during such vacancy, if such situations conform to conditions established by the Refuse Commissioner, and may also establish such conditions and the manner in which conformance with such conditions may be demonstrated. Such regulations shall be kept on file in the Register's Office. Other City departments and agencies shall cooperate with the Refuse Commissioner and the Collector in the administration and enforcement of this section.

J. *Dwelling Units—Solid Waste Services Fees During Rehabilitation.* A customer shall not be billed for or required to pay solid waste services fees for the time period during which rehabilitation of a dwelling unit is in progress if (a) rehabilitation of such dwelling unit, pursuant to a permit for rehabilitation issued by the

City of St. Louis Building Division, is in progress; (b) such dwelling unit is not occupied while such rehabilitation is in progress; and (c) a solid waste collection and disposal container serviced by a private solid waste contractor is located on the property on which such dwelling unit is located during the time period within which such rehabilitation is in progress. (1994 C., § 11.02.127; Ord. No. 70579, § 1, 7-14-2017; Ord. No. 68698, §§ 1—10, 7-2-2010)

11.02.130 Collection from nonresidential premises authorized when.

The Refuse Division shall not remove, collect, or dispose of refuse from premises other than residential premises unless the Refuse Commissioner determines that such removal is necessary to protect the public health, or is ordered to make such removal by the Health Commissioner, or is ordered to make such removal by the Director of Streets to remedy an obstruction of streets or alleys or unless such removal, collection, or disposal is pursuant to a lawful contract recommended by the Director of Streets. (1994 C., § 11.02.130; Ord. No. 59121, § 4(c), 1984.)

11.02.135 Containers provided at Refuse Commissioner's discretion.

The Refuse Commissioner may provide refuse containers for the storage of refuse from residential premises as provided herein and otherwise in his sole discretion. (1994 C., § 11.02.135; Ord. No. 59121, § 4(d), 1984.)

PART III. REFUSE CONTAINER REQUIREMENTS

11.02.140 Refuse storage and collection—Prohibited containers.

All refuse outside a structure shall be stored for collection in a refuse container as provided herein. Storage of refuse in containers not authorized by this section, for example, cardboard boxes or paper bags, is prohibited. (1994 C., § 11.02.140; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(a), 1984.)

11.02.145 Permitted containers.

The following refuse containers may be used for storage of refuse:

A. Such containers as are provided by the Commissioner of Refuse Collection; or

B. For residential premises:

1. Plastic, rubber, or metal non-disposable trash containers which have the following characteristics:

a. Volume of not less than twenty-gallon capacity and not more than thirty-two-gallon capacity;

b. Suitable handles so as to facilitate safe handling and lifting by collectors;

c. Are free of sharp edges or of any other defect liable to harm or injure a collector;

d. Lids which are tight-fitting and have handles;

e. Have printed or painted on the side of the container the address of the occupants of the premises storing refuse therein;

f. Are not less than twenty-two inches in height and nineteen inches in diameter;

2. Plastic bags may be used for refuse of residential premises if they are of a sufficient thickness and strength to prevent tearing and ripping in normal use and are equipped with a tying device;

C. For nonresidential premises: A metal container having a capacity of one cubic yard or more, or if permitted by the Refuse Commissioner, not more than two containers permitted to be used for residential premises by Subsection B.1 of this section. (1994 C., § 11.02.145; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(b), 1984.)

11.02.150 Container requirements.

A. All refuse containers shall be leak-proof and securely covered at all times.

B. All refuse containers shall be constructed and maintained so as to prevent the dispersal or release of refuse placed therein. (1994 C., § 11.02.150; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(c, d), 1984.)

11.02.155 Prohibited refuse.

No prohibited refuse shall be placed in refuse containers from which the Refuse Division collects refuse at any time nor be collected by the Refuse Division. However, notwithstanding the provisions of this section, nothing shall prevent the Refuse Commissioner from establishing special collections for major appliances, waste oil, tires, lead-acid batteries, yard waste, or other prohibited refuse. In the event that the Refuse Commissioner establishes such special collections, he shall promulgate regulations concerning the types of containers in which such items shall be placed, the manner in which they shall be collected, and the time for such collection. No person shall dump or deposit

yard waste in any refuse containers from which the Refuse Division collects refuse unless (A) the refuse container has been marked "yard waste only" by the Refuse Division; or (B) the yard waste is deposited into a City roll-out cart for a yard waste collection day designated by the Refuse Commissioner; provided, however, that the Refuse Commissioner is authorized to allow placement of yard waste in refuse containers from which the Refuse Division collects refuse in emergency situations. (1994 C., § 11.02.155; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 62276, § 2, 1991; Ord. No. 59121, § 5(e), 1984.)

11.02.160 Garbage preparation.

Garbage shall be thoroughly and completely drained of all free liquid and wrapped securely before it is placed in a refuse container. (1994 C., § 11.02.160; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(f), 1984.)

11.02.165 Owner and occupant responsibility.

The owners and the occupants of any premises within the City, producing refuse, have joint and separate responsibility, unless the Refuse Commissioner provides containers for their refuse, for providing containers for the storage of refuse produced on the premises which comply with the requirements of this chapter, and for the collection and disposal of such refuse in compliance with the provisions of this chapter. No occupant of a dwelling unit within a building containing two or more dwelling units shall be responsible for providing refuse containers for, or for the storage, collection or disposal of, refuse produced by or in any dwelling unit other than the one he occupies. (1994 C., § 11.02.165; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(g), 1984.)

11.02.170 Number posting on alley entrance.

The owner, lessee, tenant or occupant of any premises having an alley entrance shall place conspicuously at the alley entrance to such premises the house or street number thereof in figures not less than two inches high. (1994 C., § 11.02.170; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(h), 1984.)

11.02.175 Confiscation of nonusable containers.

Any refuse container not provided by the Refuse Commissioner from which the Refuse Commissioner collects refuse and which he determines to be nonusable shall be deemed to be refuse and subject to confiscation by the Commissioner after notice has been left for four days on such container, or at the premises of the apparent owner of such container. (1994 C., § 11.02.175; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(i), 1984.)

11.02.180 Confiscation of nonusable container—Exception.

Any refuse container not provided by the Refuse Commissioner from which the Refuse Commissioner collects refuse and which he determines to be nonusable shall be deemed to be refuse and subject to confiscation by the Commissioner after notice has been left for four days on such container, or at the premises of the apparent owner of such container. In no case shall the Refuse Commissioner confiscate any container clearly marked "free items for those in need," provided that any such containers meet all the requirements for such containers as provided in this chapter. (1994 C., § 11.02.180; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(j), 1984.)

11.02.185 Scavenging prohibited when.

Scavenging in or from any refuse container or in or from any container designated for recyclables is prohibited. (1994 C., § 11.02.185; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(k), 1984.)

11.02.190 Prohibited actions.

No person shall upset or cause to upset a refuse container, or dump items removed from a refuse container: on top of any such container; or on any alley, street, or public right-of-way within the City; or on private property within the City without the written permission of the property owner. (1994 C., § 11.02.190; Ord. No. 66377, § 2(part), 2004; Ord. No. 64116, § 2(part), 1997; Ord. No. 59121, § 5(l), 1984.)

11.02.195 Non-City containers—Usage.

The following provisions, in addition to the applicable provisions of Sections 11.02.140 through 11.02.190, govern the preparation and placement of refuse for collection by the Refuse Division in containers which are not provided by the Refuse Commissioner. The Division of Refuse Collection shall not be required to collect refuse prepared or placed for collection in any other manner than as prescribed in this chapter.

A. No such refuse container, when loaded, shall have a total weight of more than seventy-five pounds.

B. Such refuse containers shall be placed for collection on the premises within five feet of the property line of the premises closest to an alley, if physically possible and if freely accessible from the alley; if not, then off the premises within five feet of the property line. If there is no alley abutting the premises or if the alley is impassable for vehicles, then the Refuse Commissioner may designate the nearest convenient place where the refuse container shall be placed for collection. All refuse containers shall be returned after collection to the point of placement by the Refuse Division.

C. Items of refuse too large for such containers shall be tied in bundles not longer than three feet and not more than one foot in diameter, and not exceeding 75 pounds in weight, and placed adjacent to the container. Not more than two automobile tires will be collected at one collection point. Tires to be collected shall be tagged or marked "take." Except as provided herein, nothing shall be placed at a collection point without prior consent of the Refuse Commissioner.

D. No such refuse container shall be placed on a public right-of-way before 12:00 noon on the day preceding the day on which the refuse is scheduled to be collected. No such container shall be placed or left on the public right-of-way after eleven p.m. on the day on which the refuse is collected. (1994 C., § 11.02.195; Ord. No. 59121, § 6, 1984.)

11.02.200 City containers—Usage.

The following provisions in Sections 11.02.205 to 11.02.240 in addition to the applicable provisions of Sections 11.02.140 to 11.02.190, govern the preparation and placement for collection of refuse by the Refuse Division from containers provided by the Refuse Commissioner. (1994 C., § 11.02.200; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(part), 1984.)

11.02.205 City containers—Use required when.

When the Refuse Commissioner has notified residents that he has provided refuse containers for this use, the Refuse Commissioner shall not collect such residents' refuse from any containers other than those provided by him. (1994 C., § 11.02.205; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(a), 1984.)

11.02.210 City containers—Number and location.

The Refuse Commissioner shall determine the number and location of all containers provided by him and the residents entitled to deposit refuse for collection in all such containers provided by him. He is hereby authorized to place such containers in all alleys, streets, and public rights-of-way within the City. (1994 C., § 11.02.210; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(b), 1984.)

11.02.215 City containers—Use of closest required.

Unless otherwise instructed by the Refuse Commissioner, residents shall use the container provided by the Refuse Commissioner which is closest to their dwelling unit, unless it is full, in which case they may use the next closest such container. (1994 C., § 11.02.215; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(c), 1984.)

11.02.220 City containers—Moving prohibited.

No person shall move any refuse container provided by the Refuse Commissioner from its location as determined by the Refuse Commissioner. (1994 C., § 11.02.220; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(d), 1984.)

11.02.225 City containers—Authorized use.

No person shall deposit refuse in a refuse container provided by the Refuse Commissioner, unless he has been instructed or authorized to do so by the Refuse Commissioner. (1994 C., § 11.02.225; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(e), 1984.)

11.02.230 City containers—Damaging prohibited.

No person shall damage, destroy or alter the appearance of any refuse container provided by the Refuse Commissioner. (1994 C., § 11.02.230; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(f), 1984.)

11.02.235 City containers—Prohibited items—Placement.

A. With regard to the use of such containers, the following provisions apply:

1. No person shall place in such containers any single item with a weight of more than fifty pounds or that is more than three feet in length or that prevents the lid of the container from closing;

2. Between collections, no person shall place refuse with a volume of more than one cubic yard, or a weight of more than 350 pounds; and

3. No person shall dump or deposit any item within four feet of or on top of any such container.

B. If yard waste is collected by the Refuse Division in City containers other than roll-out carts, the Refuse Division shall mark such City containers "yard

waste only" for the separate storage and collection of yard waste from all other refuse. The placement of refuse which is not yard waste in any City container marked "yard waste only" by the Refuse Division is prohibited; provided, however, that the Refuse Commissioner (i) may designate by rules and regulations recyclable items that may be placed in containers marked for "yard waste only" and (ii) may authorize the placement of refuse that is not yard waste into City containers marked "yard waste only" in emergency situations. (1994 C., § 11.02.235; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(g, h), 1984.)

11.02.240 City containers—Responsibility for damage to container.

All persons whose dwelling units are located on a lot one line of which is closer to one container provided by the Refuse Commissioner than to any other such container, and who use such container are jointly and severally responsible for that container, and refuse deposited therein, being in compliance with the provisions of this chapter, and for damage to that container, except ordinary wear and tear, damage by City personnel, and damage demonstrably caused by others. (1994 C., § 11.02.240; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(i), 1984.)

11.02.245 Roll-out cart use.

In areas in which the Refuse Commissioner has authorized the use of roll-out carts, the following additional provisions apply:

A. The Refuse Commissioner shall provide one roll-out cart for each residential structure in the area. For structures containing more than one dwelling unit, he may provide such additional number of roll-out carts as he deems necessary, but not more than one per dwelling unit.

B. Roll-out carts remain City property. By accepting a cart, the property owner and occupant assume all liability for injury or damage arising in or out of the use, movement, or maintenance of such carts except such as directly results from the handling of such carts by the Refuse Division.

C. Roll-out carts shall be used only for storage and placement for collection of household refuse.

D. The loaded weight of roll-out carts shall not exceed 100 pounds.

E. Roll-out carts shall be placed for collection at or within two feet of the curb in front of the dwelling unit to which the cart is assigned, so as not to cause diversion of normal flow of pedestrian or vehicular traffic, and so that mechanical collection of the refuse from the carts can be done without interfering with vehicular traffic; provided, carts assigned to dwelling units on corner lots may be placed at or near the curb on the side street with the Refuse Commissioner's permission; provided further, carts shall at no time be placed on sidewalks, unless directed by the Refuse Commissioner.

F. Carts not placed for collection shall be stored so that they are not visible from the street and shall be kept clean at all times. No such cart shall be placed or allowed to remain on the public right-of-way before six p.m. on the day preceding the day on which the refuse is scheduled to be collected. No such cart shall be placed or allowed to remain on the public right-of-way after eleven p.m. on the day on which the refuse is collected.

G. The Refuse Commissioner may replace carts at no charge as needed not more often than every five years. More frequent replacement may be made but only if the City is reimbursed in advance for the cost to the City of the replacement cart.

H. If yard waste is collected from roll-out carts by the Refuse Division, the placement of refuse which is not yard waste in roll-out carts on days designated for yard waste storage and collection by the Refuse Division is prohibited; provided, however, that the Refuse Commissioner may designate by rules and regulations recyclable items that may be placed in the roll-out carts on days designated for yard waste storage and collection by the Refuse Division. (1994 C., § 11.02.245; Ord. No. 64116, § 3(part), 1997; Ord. No. 61760, § 2, 1989; Ord. No. 59121, § 7(j), 1984.)

11.02.250 Handicapped persons waiver.

The Refuse Commissioner may waive provisions of Sections 11.02.200 and 11.02.245, or provide special assistance in connection with refuse collection for severely handicapped persons living alone. (1994 C., § 11.02.250; Ord. No. 64116, § 3(part), 1997; Ord. No. 59121, § 7(k), 1984.)

11.02.255 Collection from nonresidential premises.

The following provisions, in addition to the applicable provisions of Sections 11.02.140 through 11.02.190, govern the preparation and placement for collection of refuse from nonresidential premises:

A. The owner, operator or person in charge of such premises must in all cases provide a refuse con-

tainer or containers as required by Section 11.02.145.B, at his own expense, for storage of refuse from such premises.

B. No person shall place or cause to be placed refuse from nonresidential premises in any container for residential refuse, or in any container other than the containers provided for the premises from which the refuse originates.

C. Any container for nonresidential refuse shall be at all times clearly labeled with the name and address of the owner of the container, and, if different from the owner, with the name and local telephone number of the person responsible for collecting the refuse from the container.

D. Refuse from nonresidential containers shall be removed at least once per week.

E. Containers for nonresidential refuse shall be located in an area screened from view from the street, unless it is absolutely necessary to have the container viewable from the street. The provisions of this section are not applicable to construction sites for which a building permit has been issued by the Building Commissioner.

F. No refuse shall be collected from nonresidential premises within two hundred (200) feet of residentially zoned premises or any premises used as a dwelling, including, but not limited to, a single-family dwelling, a two-family dwelling, a multifamily dwelling, a town home, or a semi-attached two-family dwelling, between the hours of eight p.m. and six a.m.

G. It is a violation of this chapter for any person other than the owner of the container willfully to damage or destroy, or willfully to alter the appearance of any refuse container provided pursuant to this section.

H. No person, other than the owner, operator, or person in charge of the premises for which a refuse container is provided pursuant to this section, shall place or cause to be placed refuse in such container. (1994 C., § 11.02.255; Ord. No. 68530, § 1, 12-14-2009; Ord. No. 61654, § 1, 1989; Ord. No. 59121, § 8, 1984.)

11.02.260 Public receptacles.

Public refuse receptacles may be placed in public places by a private party after a permit for same has been obtained from the Board of Public Service. The Board of Public Service will approve the design of all such receptacles so approved and the collection and placement of said receptacle and the collection of refuse from said containers shall be the responsibility of the Department of Streets or the private party placing such container. Public receptacles placed on the sidewalks and City streets shall be used only for such refuse as persons may have for disposal while passing along the streets. Such containers shall in no case be used for the disposal of refuse accumulated in residences or places of business. (1994 C., § 11.02.260; Ord. No. 59121, § 9, 1984.)

PART IV. GARBAGE COLLECTION PERMITS

Prior history: Ords. 50969, 56909, 55877; 1960 C. Chs. 282, 288

City Counselor Ops.: 9394

McQuillin:

24.242 Collection and disposal

11.02.265 Permits—Required—Collection, hauling and disposal by persons other than Refuse Commissioner.

A. The Director of Streets shall grant hauling permits to haulers qualified to collect or haul refuse within the City in the manner and upon the conditions set out in this section and Sections 11.02.270, 11.02.275, 11.02.315, 11.02.320, 11.02.330 and 11.02.340 and a vehicle permit for each vehicle used by that person in such collection or hauling.

B. The collection or hauling of refuse to or from a point within the City, without the required hauling and vehicle permit is prohibited. (1994 C., § 11.02.265; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(a, b), 1984.)

11.02.270 Permits—Term.

Hauling and vehicle permits as described in this section and Sections 11.02.265, 11.02.275, 11.02.315, 11.02.320, 11.02.330 and 11.02.340, shall be for a term of one year from October 1 to September 30 of the following year. (1994 C., § 11.02.270; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(c), 1984.)

11.02.275 Permits—Application—Filing.

Each applicant shall file with the Director of Streets a written application for a hauling permit and a vehicle permit or permits in such form as shall be prescribed by the Director of Streets. (1994 C., § 11.02.275; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(d), 1984.)

11.02.280 Permit—Application.

Each applicant shall file with the Director of Streets a written application for such permit in such form as shall be prescribed by the Director of Streets. Vehicles to be registered and operated under the permit applied

for shall first be inspected and approved by the Director of Streets as being properly equipped and conditioned for the sanitary and safe hauling of rubbish and bulk materials in the City. (1994 C., § 11.02.280; Ord. No. 55877, § 4(B part), 1971.)

11.02.285 Permit—Vehicle inspection.

Each vehicle must be inspected prior to the issuance of each one year permit. The applicant for inspection permit shall present the vehicle at a time and place designated by the Department of Streets. (1994 C., § 11.02.285; Ord. No. 55877, § 4(B part), 1971.)

11.02.290 Permit—Fees.

A fee shall be paid to the City in advance by the applicant for such inspection and permit according to the following schedule:

A. Motor vehicles and trailers, twelve dollars;

B. Vehicles and other than motor vehicles or trailers attachable to motor vehicles, six dollars.

Such fees shall be collected by the Department of Streets and paid to the Treasurer of the City and credited to the General Revenue Fund of the City. (1994 C., § 11.02.290; Ord. No. 55877, § 4(B part), 1971.)

11.02.315 List of permittees.

Prior to October 15 each year the Director of Streets shall furnish to the License Collector and Police Department a list of all persons who have received hauling and vehicle permits pursuant to this section and Sections 11.02.265, 11.02.270, 11.02.275, 11.02.320, 11.02.330 and 11.02.340 and the number and type of permits issued to each. (1994 C., § 11.02.315; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(g), 1984.)

11.02.320 Vehicle—License required.

No person, firm or corporation shall operate or permit to be operated any vehicle to collect or dispose of refuse within the City without a license. (1994 C., § 11.02.320; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(h), 1984.)

11.02.330 Vehicle permit—Sticker issuance and display.

Upon issuance of a vehicle permit hereunder the Director of Streets shall deliver to the permittee a sticker which is made in a manner so as to be affixed to the lower left-hand corner of the windshield of a motor vehicle and which shall be made of a different color each year. This sticker shall be affixed to the windshield of the motor vehicle for which issued, or placed in a conspicuous place on any vehicle other than motor vehicles which are approved under the provisions of this part, and said sticker shall at all times be clearly visible. (1994 C., § 11.02.330; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(e), 1984.)

11.02.340 Sticker—Nontransferable.

No vehicle sticker issued hereunder shall be assigned or transferred to another vehicle. (1994 C., § 11.02.340; Ord. No. 60292, § 2(part), 1987; Ord. No. 59121, § 10(f), 1984.)

PART V. SANITARY AND DEMOLITION LANDFILLS

11.02.350 State permit required.

The maintenance or operation of any sanitary landfill or demolition landfill without a permit from the Department of Natural Resources of the State of Missouri (or any successor agency thereto) as provided by RSMo Ch. 260 and regulations issued thereunder, or in violation of any terms of such permit, is prohibited. (1994 C., § 11.02.350; Ord. No. 59121, § 12(a), 1984.)

11.02.355 Board of Public Service permit required.

No solid waste transfer station, sanitary landfill, demolition landfill, or inert material disposition site shall be operated without a permit of the Board of Public Service. An application for a permit shall be filed with the Health Commissioner and shall contain a description and plat of the land proposed to be used, a description of the proposed operation, availability of and equipment for water supply, type and capacity of equipment proposed to be used, plans for fire, nuisance, and vermin control, and other information the Health Commissioner may reasonably require. The Health Commissioner shall examine the premises and forward to the Board of Public Service a copy of his report, together with his recommendation that the permit be granted or refused, and if the latter, he shall set forth the reasons therefor and notify the applicant thereof. Permits shall be issued by the Board of Public Service upon payment of an annual fee of one hundred dollars and shall be renewable annually at the expiration of one year from the date of issuance and upon application to the Health Commissioner as above provided. Such permit shall set forth a grade and elevation determined by the Board of Public Service above which material disposition shall not be permitted. No solid waste transfer station or sanitary or demolition landfill permit shall

be issued unless the Board of Public Service concludes that a state permit has been or will be issued, and the Board may condition such permits on such issuance. No permit provided for by this section shall be issued if prohibited by any federal agency or body having authority to do so. Such permits may be conditioned on compliance with all applicable state and federal regulations, and/or the approval of any federal agency or body with lawful jurisdiction over such permits. No inert material may be placed for final disposition at any place other than an inert material disposition site for which a permit is in effect. This section does not forbid the filling of excavations, in accordance with applicable laws or ordinances, or the use of inert materials for landscaping purposes, in accordance with applicable laws or ordinances, or quarrying and the maintenance of piles of dirt and/or the substance quarried adjacent to the quarry, in conformity with applicable laws or ordinances. (1994 C., § 11.02.355; Ord. No. 66244, § 2, 2004; Ord. No. 59121, § 12(b), 1984.)

11.02.360 Sign posting required.

Any sanitary landfill, demolition landfill, or inert material disposition site shall be at all times prominently posted with signs, on all sides thereof, stating the nature of the site, by whom the site is operated, the permit numbers and dates of issuance of the permits under which the site is operated, and the identity of the bodies issuing the permit. (1994 C., § 11.02.360; Ord. No. 59121, § 12(c), 1984.)

PART VI. VIOLATIONS AND ENFORCEMENT

11.02.365 Violations—Designated.

A. It is a violation of this chapter for any person to dump any refuse at any place within the City which is not an approved sanitary landfill site or other site approved by the Refuse Commissioner.

B. It is a violation of this chapter for any person to dump any demolition material at any place within the City which is not an approved demolition landfill or other site approved by the Refuse Commissioner.

C. It is a violation of this chapter for any person to dump any inert matter at any place within the City which is not an approved inert matter disposition site or other site approved by the Refuse Commissioner.

D. It is a violation of this chapter to conduct, procure, cause, or permit the hauling or dumping of refuse:

1. By a person who does not have a hauling permit as provided in Section 11.02.265; or

2. In a vehicle for which a vehicle permit is not in effect as provided in Section 11.02.265; or

3. At a site within the City for dumping other than an approved sanitary landfill or other site approved for dumping of the type of matter to be dumped by the Refuse Commissioner.

A violation of Subsection D.1 and 2 of this section occurs and continues from the time of placement of any refuse, in a vehicle operated by anyone who does not have a hauling permit as required by this section or in a vehicle for and on which a vehicle sticker is not in effect and displayed as required by Sections 11.02.265, 11.02.270, 11.02.275, 11.02.315—11.02.340, until the refuse is dumped.

A violation of Subsection D.3 of this section occurs whenever refuse, demolition material, or inert matter is dumped at a prohibited site.

E. For purposes of this section, refuse, demolition material and inert matter remains the property of the person from whose premises it originates until it is dumped at an appropriate disposition site or finally removed from the City. (1994 C., § 11.02.365; Ord. No. 60292, § 3, 1987; Ord. No. 59121, § 11, 1984.)

11.02.370 Penalty for violations.

Performance of any act prohibited by this chapter, and failure to perform any act required by this chapter, shall be punishable by a sentence of not more than ninety (90) days in jail, or by a minimum fine of five hundred dollars ($500.00) and a maximum fine of not more than one thousand dollars ($1,000.00) or both or by any combination of sentence and fine up to and including the maximum sentence and maximum fine. Each day that any violation hereunder continues is a separate offense subject to the penalties provided in this subsection.
(1994 C., § 11.02.370; Ord. No. 71574, § 3, 11-4-2022; Ord. No. 59121, § 13(a), 1984.)

11.02.375 Reserved.

Editor's Note:

Ord. No. 71574, § 2, approved November 4, 2022, amended the Code by repealing former section 11.02.375 in its entirety. Former § 11.02.375 pertained to fine determination and payment; and derived from the Code of 1994, § 11.02.375; and Ord. No. 59121 of 1984.

11.02.380 Enforcement—Procedure.

A. The enforcement of the provisions of this chapter is the joint responsibility of the Refuse Commis-

sioner, Health Commissioner, Building Commissioner, Director of Streets, Deputy Fire Inspectors, and Police officers. Whenever any of them shall find or observe a condition which violates or is a violation of any provisions of this chapter, he shall:

1. At his discretion, issue a notice of violation by mail or by service, which notice will explain the violation and demand its abatement forthwith or within a reasonable period of time. The time for abatement may be extended, at the discretion of the Refuse Commissioner, Health Commissioner, or Building Commissioner, for a period not to exceed six months. No extensions of time for abatement may be granted if public health is endangered by existence of the violation. If abatement does not occur as demanded, or if the official does not issue an abatement notice, the officer may make application to the City Counselor who, if satisfied that there are reasonable grounds to believe that an offense has been committed and that a case against the accused can be made, shall file an information with the City Court, pursuant to Supreme Court Rule 37.08.

2. In any case in which it is lawful for a Police Officer to arrest a person without warrant, at his discretion or at the request of a Refuse Division employee, health officer, Building Inspector, or Deputy Fire Inspector, he may forthwith serve the person with a summons instead of arresting the accused.

3. Nothing in this section shall impair or interfere in any way with any or all of the rights, powers, and duties of the Health Commissioner to abate nuisances pursuant to the provisions of Chapter 11.56 of the City Code, other provisions of such Code or any ordinances, or Articles I (25) of XIII (14C(c)) of the City Charter. The Health Commissioner may pursue all enforcement remedies contained in this chapter and all other applicable chapters of the City Code, including Chapter 11.58, against violators of this chapter.

A summons instead of a warrant may issued on the filing of an information if the judge or prosecutor has good reason to believe the accused will appear in response thereto. The summons shall describe the offense charged and shall command the accused to appear at a stated time and place in answer thereto. The summons may be served in the same manner as a summons in a civil action. If the accused fails to appear as commanded by the summons, a warrant of arrest shall be issued.

B. Proceedings under this chapter shall be consistent with the Missouri Rules of Practice and Procedure in Municipal Courts of the Missouri Supreme Court. (1994 C., § 11.02.380; Ord. No. 59121, § 13(c, d), 1984.)

Chapter 11.03

SOLID WASTE MANAGEMENT DISTRICT

Sections:

11.03.010	**Findings.**
11.03.020	**Formation of district.**
11.03.030	**Purpose of district.**
11.03.040	**Executive board—Composition.**
11.03.050	**Executive board—Member selection.**
11.03.060	**Length of terms—Vacancies.**
11.03.070	**Executive Board—Powers.**

11.03.010 Findings.

The Board of Aldermen of the City of St. Louis finds and declares as follows:

A. RSMo 260.200 to 260.345 (Supp. 1990) (the "Act") provide for the formation of solid waste management districts within solid waste management regions designated by the Missouri Department of Natural Resources (the "Department").

B. Pursuant to the Act the Department has designated The City of St. Louis, St. Louis County, and Jefferson County as Solid Waste Management Region 3.

C. RSMo 260.305.3 (Supp. 1990) permits counties within a solid waste management region to form a solid waste management district by adoption of an ordinance or order.

D. RSMo 260.300.5 (Supp. 1990) permits counties wishing to participate in a solid waste management district to formulate an alternative management structure for such district in lieu of the management structure prescribed by RSMo 260.315 (Supp. 1990); provided, however, that such district shall be governed by an executive board and comply with the provisions of the Act.

E. It is in the best interests of the citizens of the City of St. Louis and of The City of St. Louis to form, together with St. Louis County and Jefferson County, a Solid Waste Management District and to provide for a management structure for such District as hereinafter set forth. (1994 C., § 11.03.010; Ord. No. 62473, § 1, 1991.)

11.03.020 Formation of district.

There is hereby formed the St. Louis—Jefferson Solid Waste Management District (the "District") effective on the date of November 15, 1991 or the last to occur of the effective dates of the ordinance codified in this chapter, a substantially identical ordinance of St. Louis County, and a substantially identical order of the Jefferson County Commission. (1994 C., § 11.03.020; Ord. No. 62473, § 2, 1991.)

11.03.030 Purpose of district.

The District is formed for the purpose of performing all functions and duties of Solid Waste Management Districts under the Act as amended, shall have all powers granted to it by the Act as amended, and, pursuant to RSMo 260.305.2 (Supp. 1991), shall be a body corporate of the state. (1994 C., § 11.03.030; Ord. No. 62473, § 3, 1991.)

11.03.040 Executive board—Composition.

The District shall be managed by an Executive Board to consist of seven (7) members for St. Louis County, four (4) members for the City of St. Louis, two (2) members for Jefferson County and two (2) members for St. Charles County. If a county not presently a part of the District hereafter joins the District, the Executive Board shall include one (1) member for such county. (1994 C., § 11.03.040; Ord. No. 66255, § 1(part), 2003; Ord. No. 62473, § 4, 1991.)

11.03.050 Executive board—Member selection.

The members for the City of St. Louis shall be appointed by the Mayor and approved by the Board of Aldermen. They shall be residents of the City during their tenure. The members for St. Louis County and Jefferson County shall be appointed in a manner provided by the ordinance codified in this section or order of District. The members for St. Charles County shall be appointed in a manner designated by its county executive and county council. The member for any county which hereafter joins the District shall be appointed in a manner provided by the ordinance codified in this section or order of such county joining the District. The term of each member hereafter appointed shall be four years, except where the appointment is to fill an unexpired term. In such instance, the appointed member shall serve until the expiration of such unexpired term. (1994 C., § 11.03.050; Ord. No. 66255, § 1(part), 2003; Ord. No. 62473, § 5, 1991.)

11.03.060 Length of terms—Vacancies.

Of the members of the Executive Board first appointed: one member for the City, two members for St. Louis County, and one member for Jefferson County shall be appointed for terms of four years from the date of formation of the District; one member for each of the City, St. Louis County, and Jefferson County shall be appointed for terms of three years from the date of formation of the District; one member for each of the City and St. Louis County shall be appointed for terms of two years from the date of formation of the District; and one member for each of the City and St. Louis County shall be appointed for terms of one year from the date of formation of the District. Thereafter each member appointed shall serve a four-year term. Each member shall hold office until his or her successor has been appointed and qualified. In the event a vacancy exists or when a member's term expires, a successor member shall be appointed for the respective political subdivision as provided in such political subdivision's ordinance or order for the formation of the District. Members appointed to fill unexpired terms shall only serve until such unexpired term expires. Pending any appointment to fill any such vacancy, the remaining members may conduct Board business. The members of the Board shall select a Chairman to serve for a term of one year; and such other officers as it deems necessary; the office of Chairman shall be held, seriatim, by representatives of each political subdivision comprising the District. (1994 C., § 11.03.060; Ord. No. 62473, § 6, 1991.)

11.03.070 Executive Board—Powers.

The Executive Board shall perform all functions and duties provided for, and have all powers granted to, Solid Waste Management District Executive Boards by the Act, as amended, including changing the name of the District, subject to the approval of the Missouri Department of Natural Resources. (1994 C., § 11.03.070; Ord. No. 66255, § 1(part), 2003; Ord. No. 62473, § 7, 1991.)

Chapter 11.04

WEEDS

Prior history: Ords. 47844, 48337, 49773, 55662, 57628; 1948 C. Ch. 27 §§ 35—38; 1960 C. Ch. 245

RSMo:

RSMo 263.190—263.250 (2016).Destruction of weeds

RSMo 263.255—263.267 (2016). Johnson grass

City Counselor Ops.: 8275, 8591, 9861, 9957, 9969

Sections:

11.04.010 **Findings.**

11.04.020 **Definitions.**

11.04.030 **Provisions to govern abatement proceedings.**

11.04.040 **Public nuisance—Vegetation designation.**

11.04.050 **Public nuisance—Danger to public health.**

11.04.060 **Public nuisance—Debris and materials.**

11.04.070 **Notice to property owner.**

11.04.080 **Abatement procedure—Authority.**

11.04.090 **Abatement procedure—Designated.**

11.04.100 **Abatement procedure—Record required.**

11.04.110 **Abatement—Billing for costs.**

11.04.120 **Notification of Alderman of ward.**

11.04.130 **Enforcement.**

11.04.140 **Penalty for violation.**

11.04.010 Findings.

The Board of Aldermen of the City finds and declares as follows:

A. Growths of weeds and other vegetation and the presence of debris on land in the City of St. Louis are detrimental to and endanger the public health, safety and welfare.

B. Such growths of weeds and other vegetation and presence of debris are of increasing concern to citizens of the City despite extensive efforts by the City to prevent and correct such conditions.

C. Prevention and correction of such conditions are properly the duties and responsibilities of property owners.

D. The present ordinance provisions concerning such conditions do not provide an effective system for requiring prevention and correction of such conditions by property owners. (1994 C., § 11.04.010; Ord. No. 59860, § 1, 1986.)

11.04.020 Definitions.

As used in this chapter:

A. "Forestry Commissioner" means the Forestry Commissioner of the City of St. Louis or his designated employee. The Forestry Commissioner's designated employee, for purposes of this chapter, also includes neighborhood stabilization officer/neighborhood improvement specialist.

B. "Health Commissioner" means the Health Commissioner of the City of St. Louis or his designated employee.

C. "Occupied" means improved with a structure which is being used for any purpose.

D. "Substantial value" means having an apparent resale value of one hundred dollars ($100.00) or more. (1994 C., § 11.04.020; Ord. No. 67886, § 1, 2008; Ord. No. 59860, § 2, 1986.)

11.04.030 Provisions to govern abatement proceedings.

Any ordinance or City Code provision to the contrary notwithstanding, this chapter shall govern proceedings for the abatement of nuisance conditions as defined in this chapter. (1994 C., § 11.04.030; Ord. No. 59860, § 4, 1986.)

11.04.040 Public nuisance—Vegetation designation.

Russian, Canadian, or common thistle, wild lettuce, wild mustard, wild parsley, ragweed, milkweed, ironweed, poisonous plants or shrubs, and all other unattended vegetation and noxious weeds which have attained a height of seven (7) inches or more growing or being upon any lot or lands within the City, and unattended growths of shrubs, trees, and seedlings, which in the opinion of the Commissioner of Forestry, are unsightly and which may impede the clearing of any lot or lands within the City contrary to the general purpose of this chapter, are hereby declared a public nuisance. Every owner, occupant, or person in control of any lot or land within the City shall cause such lot or lands to be kept free from such noxious weeds and vegetation by destroying them, by cutting or spraying with a chemical compound approved by the United States Department of Agriculture and the United States Environmental Protection Agency for the destruction of weeds, or by digging under, or by any other method approved by the Commissioner of Forestry. (1994 C., § 11.04.040; Ord. No. 59860, § 5, 1986.)

Charter:

Art. I § 1(25) Nuisances

Cases:

A charter provision giving the city the power to declare, prevent and abate nuisance on private property gives the

city the power to pass an ordinance forbidding the owner of the premises from permitting a growth of weeds. *City of St. Louis v. Gait,* 179 Mo. 8, 77 S.W. 876 (1903).

McQuillin:

24.90 Weeds as nuisances

11.04.050 Public nuisance—Danger to public health.

Any public nuisance described in Section 11.04.040 is hereby found and declared to be a nuisance, the existence of which is plain and the continuance of which is a danger to public health. (1994 C., § 11.04.050; Ord. No. 59860, § 6, 1986.)

11.04.060 Public nuisance—Debris and materials.

The presence upon any lot or lands, other than properly licensed and operated salvage yards, within the City of debris of any and all kinds and varieties, including, but not limited to, weed cuttings, cut and fallen trees and shrubs, rubbish and trash of all kinds, lumber of all kinds not piled or stacked twelve (12) inches off the ground, rocks or bricks of all kinds not piled or stacked twelve inches off the ground, tin, steel, parts of derelict cars or trucks, broken furniture, any flammable material which may endanger the public safety or any material which is unhealthy, unsanitary or unsafe is hereby declared a public nuisance. It is the duty of every owner, occupant or person in control of any lot or land within the City to remove debris from such lot or land forthwith. (1994 C., § 11.04.060; Ord. No. 59860, § 7, 1986.)

McQuillin:

32.27 Compelling weed removal

11.04.070 Notice to property owner.

A. The Forestry Commissioner shall prepare each year a written notice which shall:

1. Summarize the provisions of this chapter;

2. Be accompanied by a copy of this chapter;

3. Advise the property owners of the average length of time in which untended weeds attain the height of seven inches, and the approximate dates between which such growth occurs;

4. Advise the property owners of the methods the City will use during the year to abate weed and debris nuisances and of the best available figures on the costs of such methods on a per square foot basis;

5. Contain such other information as the Forestry Commissioner deems necessary and appropriate.

B. The Forestry Commissioner may mail the notice described in this section by first class mail to any owner of property in the City between February 1 and March 31 of each year. The Forestry Commissioner shall mail a copy of such a notice to any property owner with respect to whose property abatement proceedings hereunder are initiated, and to each purchaser of property in the City of St. Louis as soon as possible after the purchase is reported in the St. Louis Daily Record. If the owner or person in control of such property is a nonresident of the City and has no business address in the City, such notice shall be deemed served at the end of such period after the mailing thereof as in the ordinary course of delivery of mail would be required for delivery of such notice.

C. The Forestry Commissioner may cause a summary of the provisions of this chapter to be published in each daily newspaper of general circulation with its principal office in the City of St. Louis at least two (2) times between February 1 and March 31 of any year. (1994 C., § 11.04.070; Ord. No. 59860, § 8, 1986.)

RSMo:

RSMo 71.285 (2016) Weeds—destruction and removal.

11.04.080 Abatement procedure—Authority.

Weed or debris nuisances may be abated immediately as follows:

A. Nuisances described in Section 11.04.040 on properties whose owners have been served with notice under Section 11.04.070.B shall be abated by the Forestry Commissioner without further notice.

B. When debris as described in 11.04.070.B is found, which in the judgment of the Forestry Commissioner may constitute an immediate danger to the public health and safety, he shall notify the Health Commissioner who shall inspect the property. Pursuant to Article XIII Section 14-C(c) of the City Charter, if the Health Commissioner, on such inspection, finds that the existence of a nuisance is plain and that its continuance is a danger to the public health and safety, he may order the Forestry Commissioner to abate such nuisance as soon as practicable. (1994 C., § 11.04.080; Ord. No. 59860, § 9, 1986.)

11.04.090 Abatement procedure—Designated.

Except as provided in Section 11.04.080, weed and debris nuisances shall be proceeded against as follows:

A. If the Forestry Commissioner finds a weed nuisance, he shall give notice to the property owner as

provided in Subsection D of this section. If the condition has not been abated within the time provided in that subsection, the Forestry Commissioner shall abate it.

B. If debris, not of substantial value, is found on vacant property, the Forestry Commissioner shall give notice to the property owner as provided in Subsection D of this section. If the condition has not been abated within the time provided in that subsection, the Forestry Commissioner shall abate it.

C. If debris is found on improved property, or if debris which appears to be of substantial value is found on any property, the Forestry Commissioner, if the condition is not abated within seven (7) days, shall notify the Health Commissioner, who shall inspect said property and notify the owner and occupant if different from the owner that he will conduct a hearing on the condition on the seventh day following the date of the notice (or, if such seventh day be a Saturday, Sunday, or holiday, on the next day after such seventh day which is not a Saturday, Sunday, or holiday). Such hearing shall be informal and shall not be postponed or continued. The property owner or occupant may testify. Immediately upon the conclusion of such hearing, the Health Commissioner shall determine whether the condition is a public nuisance as defined in Section 11.04.060. If he so determines he shall order the condition abated within seven (7) days. If the condition is not abated within such seven (7) days, the Forestry Commissioner or such other City department or division as may be directed by the Health Commissioner shall abate it.

D. Any notice provided for by this section shall specify the address of the property and the weed or debris condition existing on the property. Such notice shall be served:

1. By causing such notice to be delivered to the owner or other person in control; or

2. By mailing such notice, first class postage prepaid, to the property owner or other person in control of the property, either at his place of business or residence address in the City or elsewhere. Such notice shall be deemed served twenty-four (24) hours after the mailing of such notice if it is directed to a business or residence address in the City of St. Louis. If the owner or person in control of such property is a nonresident of the City and has no business address in the City, such notice shall be deemed served at the end of such period after the mailing thereof as in the ordinary course of delivery of mail would be required for delivery of such notice.

3. If no mailing address can be determined for the owner or person in control of such property, a copy of such notice shall be posted upon the lot or land in question; such posted notice shall be deemed served at the end of twenty-four (24) hours after the posting thereof.

4. In giving any notice under this chapter, any City official or employee shall proceed in a manner which is both consistent with this chapter and which is reasonably calculated to cause actual notice to reach the property owner or person in control of the property.

5. Such notice if given pursuant to Subsection A or B of this section shall state that the weeds or debris must be removed, and that such removal must begin within two (2) days after such notice is served and be completed within five (5) days after such notice is served. If given pursuant to Subsection C of this section, the notice shall state time, place, and purpose of the hearing. (1994 C., § 11.04.090; Ord. No. 64164, § 1, 1997; Ord. No. 59860, § 10, 1986.)

RSMo:

RSMo 71.285 (2016) Weeds—destruction and removal.

11.04.100 Abatement procedure—Record required.

After abating any nuisance hereunder, the Forestry Commissioner or other City department or division which conducted such abatement shall record the following: date and location of abatement, condition abated, equipment, material and personnel used, the length of use of personnel and equipment, quantity of material used, such other data as is appropriate to document the actual cost of the abatement, including clerical costs, and the method and dates of service of notice hereunder. (1994 C., § 11.04.100; Ord. No. 59860, § 11, 1986.)

11.04.110 Abatement—Billing for costs.

The Forestry Commissioner shall bill the owners of any property on which the City abates a nuisance under this chapter for the cost of such abatement. Any such bill for the abatement of a nuisance under the provisions of Section 11.04.080 which is unpaid ninety (90) days after it is mailed may be referred to the City Counselor or to a collection agency for collection and shall bear interest at the highest rate allowed by law.

Any such bill for the abatement of a nuisance under the provisions of Section 11.04.090 which the Forestry Commissioner has been unable to collect shall be certified to the Comptroller who shall prepare a special tax bill for the amount of the cost certified and shall immediately send the special tax bill to the Collector of Revenue for collection as provided in Section 5.08.010, et. seq. of the Revised Code of the City of St. Louis, and the certified cost shall be collected in the same manner and procedure for collecting real estate taxes. If the certified cost is not paid, the tax bill shall be considered delinquent, and the collection of the delinquent bill shall be governed by the laws governing delinquent and back taxes. The tax bill from the date of its issuance shall be deemed a personal debt against the owner and shall also be a lien on the property until paid. (1994 C., § 11.04.110; Ord. No. 65812, § 1, 2003; Ord. No. 64164, § 2, 1997; Ord. No. 60457, § 1, 1987; Ord. No. 59860, § 12, 1986.)

11.04.120 Notification of Alderman of ward.

The Forestry Commissioner shall notify the Alderman of the ward in which any property is located on which the Forestry Commissioner or Health Commissioner abates any nuisance hereunder three (3) times within a twelve (12) month period. (1994 C., § 11.04.120; Ord. No. 59860, § 13, 1986.)

11.04.130 Enforcement.

Enforcement of this chapter shall be the joint responsibility of the Forestry Commissioner, Health Commissioner, and Police Department; provided, however, that the Forestry Commissioner or Health Commissioner may refer properties subject to this chapter to the Building Division if they believe building code violations also exist on such property. (1994 C., § 11.04.130; Ord. No. 59860, § 15, 1986.)

11.04.140 Penalty for violation.

Any person who shall violate provisions of this chapter shall, upon conviction thereof, be subject to a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed ninety (90) days, or both, at the discretion of the Court. Each day a nuisance described in Section 11.04.040 is unabated, or debris as described in Section 11.04.060 remains on property, after notice has been served pursuant to Sections 11.04.070 or 11.04.090, is a separate violation. (1994 C., § 11.04.140; Ord. No. 60149, § 2, 1986; Ord. No. 59860, § 14, 1986.)

Chapter 11.05

RELOCATION POLICY

Sections:

Part I. Adoption—Enforcement

11.05.010 Adopted.
11.05.020 Enforcement.

Part II. General

11.05.030 Purpose.
11.05.040 Definitions.
11.05.050 Applicability.
11.05.060 Minimum standards.

Part III. Administrative Matters

11.05.070 Assurances—Monitoring and corrective action.
11.05.080 Recordkeeping and records and reports.
11.05.090 Administration of relocation payments.
11.05.100 Appeals.

Part IV. Relocation Notices and Assistance

11.05.110 Notices.
11.05.120 Referrals to replacement properties before displacement.

Part V. Payments for Moving and Related Expenses

11.05.130 Payment for residential moves.
11.05.140 Payment for nonresidential moves.
11.05.150 Requirements for receipt of payments for actual reasonable moving and related expenses.
11.05.160 Ineligible moving and related expenses.
11.05.170 Waiver of benefits.

PART I. ADOPTION—ENFORCEMENT

11.05.010 Adopted.

The City of St. Louis Relocation Policy, is hereby adopted as the official policy of the City governing the relocation of persons displaced as a result of projects in the City utilizing the power of eminent domain, tax abatement, tax increment financing, tax exempt reve-

nue bonds issued by a public or quasi-public agency or a grant or loan from the City or any agency thereof, to the extent that such displacement is not governed by the provisions of the URA or Section 104(d). (1994 C., § 11.05.010; Ord. No. 62481, § 1, 1991.)

11.05.020 Enforcement.

The SLDC is hereby directed to monitor compliance and to take corrective action to enforce the Policy and to oversee appeals of determinations made by developers (as defined in the Policy) with respect to relocation payments and assistance, all as set forth in the Policy. (1994 C., § 11.05.020; Ord. No. 62481, § 3, 1991.)

PART II. GENERAL

11.05.030 Purpose.

The purpose of this Relocation Policy for the City of St. Louis ("Policy"), is to ensure that all persons displaced as a result of projects which receive public assistance in the City of St. Louis are treated fairly, consistently and equitably and do not suffer disproportionate injuries as a result of such projects. (1994 C., § 11.05.030; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.040 Definitions.

A. *Business.* The term "business" means any lawful activity that is conducted:

1. Primarily for the purchase, sale, lease and/or rental of personal and/or real property, and/or for the manufacture, processing, and/or marketing of products, commodities, and/or any other personal property; or

2. Primarily for the sale of services to the public.

B. *Comparable Replacement Dwelling.* The term "comparable replacement dwelling" means a dwelling which is:

1. Decent, safe and sanitary, as defined in Subsection C of this section;

2. Located in an area generally not less desirable than the location of the displacement dwelling with respect to public utilities, commercial and public facilities and the person's place of employment; and

3. Available at a cost generally consistent with the market in the St. Louis Metropolitan Area for dwellings similar to the displacement dwelling.

C. *Decent, Safe and Sanitary Dwelling.* The term "decent, safe and sanitary dwelling" means a dwelling which meets applicable housing and occupancy codes and:

1. Is structurally sound, weathertight, and in good repair;

2. Contains a safe electrical wiring system adequate to service the reasonable electrical needs of the displaced person;

3. Contains a safe heating system capable of sustaining a healthful temperature for the displaced person;

4. Is adequate in size and with respect to the number of rooms and area of living space needed to accommodate the displaced person;

5. For a handicapped person, is free of any barriers which would preclude reasonable ingress, egress or use of the dwelling by such person.

D. *Developer.* The term "developer" means the City of St. Louis (the "City") or any agency of the City or any public or quasi-public agency or corporation operating in the City, to the extent that the foregoing undertake a project (as defined in Subsection K of this section) on their own behalf, or a person, partnership or corporation which undertakes a project.

E. *Displaced Person.* The term "displaced person" means any person (as defined in Subsection J of this section) that voluntarily and permanently moves from real property, or voluntarily and permanently moves his or her personal property from such real property as a direct result of the acquisition, rehabilitation or demolition of, or the receipt of a written notice of intent to acquire (as described in Section 11.05.110.A, such real property, in whole or in part, for a project; excluding, however, any such person as has received a notice of termination of intent to acquire as described in Section 11.05.110.C prior to moving from the real property. The term "displaced person" does not include:

1. A person who is evicted for cause from the real property, in accordance with applicable state and local law, if:

a. The person received an eviction notice prior to the Initiation of Negotiations, and, as a result is later evicted; or

b. The person is evicted after the Initiation of Negotiations for serious or repeated violations of material terms of the lease or occupancy agreement; and

c. In either case a or b, the eviction was not undertaken for the purpose of evading the obligation to provide the relocation payments and assistance set forth in this Policy.

2. A person who has no legal right to occupy the real property under state or local law;

3. A person who occupies the real property for the purpose of obtaining relocation assistance;

4. A person who is a tenant-occupant and moves onto the real property after the Initiation of Negotiations (as defined in Subsection I of this section), with knowledge of the possibility of displacement for a project.

F. *Displacement Dwelling.* The term "displacement dwelling" means the dwelling (as defined in Subsection G of this section) from which a person is being displaced.

G. *Dwelling.* The term "dwelling" means the permanent or customary and usual residence of a person, according to local custom of law, including a single-family unit in a two-family, multifamily, or multipurpose property; a unit of a condominium or cooperative housing project; or any other residential unit. "Dwelling" does not include the place of operation of a business or nonprofit organization.

H. *Handicapped Person.* The term "handicapped person" means any person who is deaf, legally blind or orthopedically disabled to the extent that acquisition of another residence presents a greater burden than other persons would encounter or to the extent that modifications to the replacement residence would be necessary.

I. *Initiation of Negotiations.* The term "Initiation of Negotiations" means the delivery of the initial written offer by the developer to the owner of the real property to purchase such real property or the notice to a tenant that (s)he will be displaced by the project (as defined in Subsection K of this section).

J. *Person.* The term "person" means any individual, family, partnership, corporation or association.

K. *Project.* The term "project" means the demolition, rehabilitation or construction of improvements on, or the redevelopment of, real property in the City of St. Louis which will result in the displacement of any person and which will utilize any one or more of the following:

1. Power of Eminent Domain;

2. Tax Abatement;

3. Tax Increment Financing;

4. Tax-exempt revenue bonds issued by a public or quasi-public agency;

5. A grant or below-market interest rate loan from the City or any agency thereof.

L. *Public Agency.* The term "Public Agency" means any agency of the City or any public or quasi-public agency or corporation operating in the City and providing to a developer the assistance described in Subsections K.1 through 5 of this section.

M. *Reasonable Moving and Related Expenses.* The term "reasonable moving and related expenses" means those expenses of moving, as described in Sections 11.05.130 or 11.05.140, as appropriate, from the displacement property to a comparable property in the St. Louis Metropolitan Area, to the extent that such expenses would customarily be incurred for such a move.

N. *Tenant.* The term "tenant" means a person who has the temporary use and occupancy of real property owned by another. (1994 C., § 11.05.040; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.050 Applicability.

Any person who is a displaced person (as defined in Section 11.05.040.E) of this Policy) as a result of a project, the plans, projects or areas for redevelopment under the provisions of RSMo 99, 100 or 353 (1986) for which are approved or amended, or the issuance of tax exempt revenue bonds or the making of a grant or below market interest rate loan for which are approved by the City or the Public Agency on or after August 31, 1991, will be entitled to receive from the developer the relocation payments and assistance set forth in this Policy, to the extent authorized in this Policy, unless (1) the provisions of the Federal Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (42 U.S.C. § 4601 to 4655, inclusive, as amended) (the "URA") or Section 104(d) of the Federal Housing and Community Development Act of 1974 (42 U.S.C. § 5304(d), as amended) are applicable to such displacement; or (2) the person is displaced as the result of the acquisition for a public purpose of real property in the City of St. Louis by the State of Missouri or any political subdivision or any branch, bureau or department thereof, or by any quasi-public corporation, and such real property is purchased solely through the expenditure of state or local funds, in which case the provisions of the URA shall apply. (1994 C., § 11.05.050; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.060 Minimum standards.

The requirements set out in this Policy shall be considered minimum standards. In reviewing any relocation plan proposed by a developer under the operation of Chapter 99, RSMo Ch. 100 or 353, the Public Agency shall determine the adequacy of the proposed plan, and may, in its discretion, require additional assistance to be provided. (1994 C., § 11.05.060; Ord. No. 62481, § 1 Exh. A(part), 1991.)

PART III. ADMINISTRATIVE MATTERS

11.05.070 Assurances—Monitoring and corrective action.

A. *Assurances.* Each developer (except the City or any agency thereof or any public or quasi-public agency or corporation operating in the City, unless they are receiving for another such entity the assistance described in Section 11.05.040.K shall provide assurances in a contract with the entity providing the assistance described in Section 11.05.040.K (i.e., the City or a Public Agency) that the developer will comply with the provisions of this Policy. The City or Public Agency shall provide a copy of each contract containing such assurances to the St. Louis Development Corporation ("SLDC"), 330 North 15th Street, St. Louis, Missouri 63103, Attention: Relocation Section.

B. *Monitoring and Corrective Action.* SLDC shall monitor compliance with this Policy and may pursue any and all legal and equitable remedies to ensure compliance with this Policy and/or make recommendations to, and assist the City or Public Agency regarding corrective action, as it deems appropriate. The City or Public Agency may also independently apply sanctions and/or take corrective action in accordance with applicable program regulations and/or contracts with the developer; provided, however, that prior to so doing, the City or Public Agency shall notify SLDC thereof.

Nothing contained herein shall be construed as imposing upon SLDC, the City or the Public Agency the obligation to provide the relocation payments and assistance to displaced persons unless such entities undertake a project on their own behalf. Each developer shall indemnify and defend the City and SLDC and, if applicable, the Public Agency, for any and all claims of any kind whatsoever arising out of the developer's administration and/or implementation of the Policy and shall post a bond in an amount deemed satisfactory to such entities to secure the faithful performance of such obligation. A provision containing the foregoing requirements shall be contained in the contract described in Section 11.05.070.A.

C. *Urban Redevelopment Corporations.* A developer which is an urban redevelopment corporation created pursuant to RSMo Ch. 353 ("Urban Redevelopment Corporation") that fails to comply with the relocation requirements provided in this Policy, shall not be eligible for tax abatement as provided for in RSMo Ch. 353. (1994 C., § 11.05.070; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.080 Recordkeeping and records and reports.

A. *Recordkeeping.* The developer shall maintain records and reports of its acquisition and displacement activities in sufficient detail to demonstrate compliance with this Policy, as further described in this section. The developer shall retain such records for at least three (3) years from the date that each owner of the real property and each person displaced from the real property receives the final payment to which (s)he is entitled under this Policy.

B. *Records.* The developer shall maintain individual case files containing the following information:

1. Identification of the person's name, address and date of initial occupancy of the displacement dwelling. The developer shall also make a good faith effort to identify, with respect to residential tenant-occupants, the age, sex, and income of all members of the household, and the monthly rent and average monthly utility costs at the displacement dwelling.

2. Evidence that the person received the Notice of Intent to Acquire complying with the requirements of Section 11.05.070.A in a timely fashion.

3. Evidence that each displaced person received an Eligibility and Vacation Notice complying with requirements of Section 11.05.070.B in a timely fashion.

4. Identification of relocation needs and preferences and dates of personal and other contacts and services provided.

5. Identification of referrals to replacement properties as required in Section 11.05.120 of this Policy, date of referral, rent or sale price of each referral dwelling and the utility costs thereat to the extent available to the developer, date of availability of the referral property, and reason(s) given by the person for rejecting the referral property, if applicable.

6. Copy of the Vacate Notice(s), to the extent not provided pursuant to Subsection B.3 of this section.

7. Identification, by address, of the replacement property, rent or sale price of the replacement dwelling and the estimated utility costs thereat to the extent available to the developer and the date of relocation.

8. Copy of each approved claim form and related documentation, evidencing that the person received a relocation payment.

C. *Reports.*

1. *All Developers.* The developer shall provide to SLDC and to the Public Agency providing the assistance described in Section 11.05.040.K (if applicable), the following:

a. Notices of when relocation begins and when it has been completed.

b. A copy of any written complaint received by the developer from a displaced person regarding relocation payments or assistance.

c. If requested, a copy of any one or more of the case files to be maintained by the developer pursuant to the provisions of Subsection B of this section.

2. *Urban Redevelopment Corporations.* In addition to providing the information described in Subsection C.1 of this section, every Urban Redevelopment Corporation shall:

a. Submit, as part of a "redevelopment plan" (as defined in RSMo Ch. 353), a relocation plan complying with the provisions of this Policy; and

b. Submit to SLDC the address of all occupied residential buildings and structures within the "redevelopment area" (as defined in RSMo Chs. 99, 100 and 353, as appropriate), the names and addresses of the persons displaced by the Urban Redevelopment Corporation, the specific relocation payments and assistance provided to each such displaced person and copies of the notices provided by such developer to each displaced person. (1994 C., § 11.05.080; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.090 Administration of relocation payments.

A. *Expeditious Payments.* The developer shall review claims for relocation payments in an expeditious manner. The developer shall promptly notify all displaced persons of any additional documentation that is required to support the claim. The developer shall pay all claims for relocation payments as soon as possible following receipt of sufficient documentation to support the claim, but in no event later than thirty days following receipt of such documentation.

B. *Advance Payments.* If the developer or SLDC determines that a displaced person should be provided with an advance relocation payment in order to avoid or reduce a hardship, the developer shall issue the payment, subject to such safeguards as are appropriate to ensure that the objective of the payment is accomplished.

C. *Time for Filing.* Except to the extent extended by the Public Agency for good cause, all claims for relocation payments shall be filed with the developer within six months after:

1. In the case of tenants, the date of displacement;

2. In the case of owners, the date of displacement or the final payment for the acquisition of the real property (except that in the case of property acquired pursuant to an installment sales contract, the date of payment of the initial regular installment), whichever is later.

D. *Deductions From Relocation Payments.* A developer shall deduct the amount of any advance relocation payment from any subsequent relocation payment to which a displaced person is otherwise entitled. Similarly, a developer may deduct from relocation payments any rent that the displaced person owes the developer; provided, however, that no deduction shall be made if it would prevent the displaced person from obtaining a "decent, safe and sanitary" replacement dwelling. The developer shall not withhold any part of a relocation payment to a displaced person to satisfy an obligation to any other creditor, except as otherwise may be required by law. (1994 C., § 11.05.090; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.100 Appeals.

A. *Initiation of an Appeal.* A person may initiate an appeal by personally delivering or mailing a written notice of appeal to SLDC within sixty (60) calendar days after the person receives written notification of the developer's determination on the person's claim for relocation payments and assistance. The person requesting the appeal shall also mail a copy of said notice of appeal to the developer. SLDC shall accept written notices of appeals regardless of form. If a person does not file a notice of appeal within said sixty (60) day period, the person will be deemed to have waived his/her right to an appeal.

B. *Review of Developer's Files by Appealing Person.* The developer shall permit the appealing person to inspect and copy all materials pertinent to his or her

appeal, except records which may remain closed pursuant to the provisions of RSMo 610.021. The developer may, however, impose reasonable conditions on the person's right to inspect, and to obtain copies of materials, including imposing a reasonable charge for copies.

C. *Statement of Appeal.* Within thirty (30) calendar days after submitting a notice of appeal, the appealing party shall file with SLDC a written statement of appeal describing in detail the errors allegedly made by the developer in determining the person's eligibility for relocation assistance or the amount or type of assistance to which such person is entitled. On or before the day the appealing party files the statement of appeal with SLDC, the appealing party shall mail a copy thereof to the developer. The developer may submit for SLDC's consideration a written response to the statement of appeal by personally delivering or mailing same to SLDC within thirty (30) calendar days after the date the statement of appeal is filed. On or before the day the developer files the response with SLDC, the developer shall mail a copy thereof to the appealing party. All statements of appeal and responses thereto shall be confined to the factual and legal issues essential to the ultimate and just determination of the appeal. The statement of appeal and response shall not exceed ten (10) pages in length, excluding all documents attached thereto in support of the arguments contained in the statement of appeal of the response.

D. *Review Committee.* The Executive Director of SLDC shall appoint a committee of one or more persons to review appeals filed pursuant to this Policy (the "Review Committee").

E. *Scope of Review.* The decision of the Review Committee shall be made on the basis of the statement of appeal and response; provided, however, that the Review Committee shall have the option, in its sole discretion, to request that the parties appear at a hearing by notifying the parties thereof within ten (10) business days of the date of developer's response to the statement of appeal is due. Said notice shall state the place and the time and date of the hearing which shall be at least (2) calendar days from the date of said notice. Neither party shall be permitted to submit new or additional documentation or information subsequent to the date of filing of such party's statement of appeal or response was due.

F. *Right to Representation.* A person and the developer shall have the right to be represented by legal counsel in connection with an appeal, but solely at their own expense.

G. *Determination and Notification.* Within thirty (30) calendar days after the date the response to the statement of appeal is due or the date of the hearing on an appeal, whichever is later, the Review Committee shall make a written determination on the appeal, including an explanation of the basis upon which the decision was made and shall furnish a copy thereof to the developer, the Public Agency (if applicable) and the appealing party.

H. *Waiver of Requirements.* The Review Committee may, in its discretion, waive any of the requirements imposed by this section on the appealing party of the developer if it believes that doing so is in the interest of fairness and will not be prejudicial to either party. (1994 C., § 11.05.100; Ord. No. 62481, § 1 Exh. A(part), 1991.)

PART IV. RELOCATION NOTICES AND ASSISTANCE

11.05.110 Notices.

A. *Notice of Intent to Acquire.* At least ninety (90) days prior to the date that the person will be required to vacate the real property, the developer shall send a Notice of Intent to Acquire to each person that may be permanently displaced as a result of a project. At a minimum, the notice shall do the following:

1. Explain that a project has been proposed and that the developer intends to acquire the real property therefor;

2. Caution the person not to move before the person receives a notice of eligibility for assistance;

3. Generally describe the relocation payments for which the person may be eligible, the basic conditions of eligibility and the procedures for obtaining the payments;

4. Generally describe the relocation assistance to which such person may be entitled, including referrals to replacement properties, help in filing payment claims and other necessary assistance to help the person successfully relocate and the procedures for the provision of such assistance;

5. Inform the person that (s)he will not be required to move without at least ninety (90) days advance written notice;

6. Provide the name, address and telephone number of the person who will be handling relocation for the developer;

7. Inform the person of the requirements set forth in Section 11.05.150, to the extent applicable; and

8. Generally describe the appeals procedure as set forth in Section 11.05.100.

B. *Eligibility and Vacation Notice.*

1. *General.* No displaced person shall be required to move unless he or she has received at least ninety (90) days advance written notice of: (a) the earliest date by which he or she may be required to vacate the real property; and (b) the person's eligibility for relocation payments and/or assistance.

2. *Timing of Notice.* The Eligibility and Vacation Notice shall not be given before, but may be given concurrently with, the Notice of Intent to Acquire described in Subsection A of this section.

3. *Content of Notice.* The Eligibility and Vacation notice shall either:

a. State the specific date by which the real property must be vacated; or

b. Specify the earliest date by which the person may be required to move and indicate that the person will receive another notice indicating the specific date by which he or she must move, at least thirty (30) days prior to such date; such notice shall also state whether the person is eligible for relocation payments and/or assistance. The developer shall include with each such notice a copy of SLDC's appeals procedures.

4. *Additional Vacation Notice.* If the developer previously provided an Eligibility and Vacation Notice which did not state the specific date by which the real property must be vacated, the developer shall provide an additional vacation notice stating the specific date by which the person will be required to vacate the real property at least thirty (30) days prior to such date.

5. *Notice Not Required.* The Eligibility and Vacation Notice and, if applicable, the Vacate Note described in Subsection B.4 of this section need not be issued to a person if:

a. There is no occupied structure and no personal property on the real property;

b. The person makes an informed decision to relocate and vacates the real property prior to the time such notices are to be provided;

c. The person, with full knowledge of his or her right to receive such notices, enters into a negotiated agreement for delivering possession of the real property; or

d. The person does not qualify as a displaced person, as defined in Section 11.05.040.E of this Policy.

C. *Notice of Termination of Intent to Acquire.* A developer can terminate any further obligation to provide the relocation payments and assistance provided herein by providing to each person occupying the real property a notice that it is terminating its intent to acquire such property; provided, however, that if the developer shall reinitiate negotiations for such real property within one (1) year of such termination, the eligibility of all displaced persons who were eligible for payments and/or assistance at the time of such termination shall resume and the eligibility of any other displaced persons shall be determined with reference to this Policy; and, provided further, that the developer shall be obligated to pay any documented actual reasonable moving and related expenses incurred by each such person prior to the date of the notice of termination, to the extent such expenses would be eligible for payment under the provisions of this Policy.

D. *Manner of Notices.* Each notice which the developer is required to provide to a displaced person under this Policy shall be personally served or sent by certified or registered first class mail, return receipt requested, and a copy thereof shall be kept in the developer's files; if notice is sent by certified or registered first class mail, the notice shall also be sent by first class mail, postage prepaid. Proof that the notice was so sent shall be sufficient to satisfy the developer's obligation hereunder, notwithstanding the displaced person's failure to accept the notice sent by certified or registered first class mail. Each notice shall indicate the name and telephone number of a person who may be contacted for answers to questions or other needed help. (1994 C., § 11.05.110; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.120 Referrals to replacement properties before displacement.

A. *General.* The developer shall provide reasonable assistance in identifying replacement properties to all displaced persons, including a minimum of three decent, safe and sanitary dwelling referrals to all residential displaced persons, and three suitable replacement referrals to all displaced businesses. The devel-

oper shall use its best efforts to cause the referrals provided to residential displaced persons to consist of comparable replacement dwellings.

B. *Time for Referrals.* The developer shall provide the referrals called for herein concurrently with the Eligibility and Vacation Notice described in Section 11.05.110.B.

C. *Transportation to Referral Sites.* All residential displaced persons shall be offered transportation to inspect the dwellings to which they are referred. (1994 C., § 11.05.120; Ord. No. 62481, § 1 Exh. A(part), 1991.)

PART V. PAYMENTS FOR MOVING AND RELATED EXPENSES

11.05.130 Payment for residential moves.

Any displaced person who is an owner-occupant or tenant of a dwelling and occupied the real property for not less than ninety (90) days prior to: (a) the date the Notice of Intent to Acquire as described in Section 11.05.110.A is sent; or (b) the Initiation of Negotiations (as defined in Section 11.05.040.I of this Policy), is entitled to:

A. Payment of his or her actual reasonable moving and related expenses, including expenses for:

1. Transportation of the displaced person and personal property;

2. Packing, crating, unpacking, and uncrating of the personal property;

3. Utility deposits;

4. Key deposits;

5. Storage of personal property up to one month, unless the developer determines that a longer period is appropriate;

6. Utility transfer and connection fees;

7. Other initial rehousing deposits, including, in the case of a displaced person who relocates to rental housing, first and last month's rent and security deposit to the extent required by the owner thereof;

8. Other moving-related expenses that are not listed in ineligible as the developer determines to be reasonable and necessary.

B. In lieu of actual moving and related expenses, a fixed payment in the amount of $500.00. (1994 C., § 11.05.130; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.140 Payment for nonresidential moves.

Any business or nonprofit organization which qualifies as a displaced person and has occupied the real property for not less than ninety (90) days prior to:

A. The date the Notice of Intent to Acquire as described in Section 11.05.110.A is sent; or

B. The Initiation of Negotiations (as defined in Section 11.05.040.I of this Policy), is entitled to:

1. Payment for actual reasonable moving and related expenses, including expenses for:

a. Transportation of personal property;

b. Packing, crating, unpacking, and uncrating of the personal property;

c. Disconnecting, dismantling, removing, reassembling, and reinstalling all relocated personal equipment.

This includes connection to utilities available at the replacement site. It also includes modifications to the personal property necessary to adapt it to the replacement structure or the utilities at the replacement site. (Expenses for providing utilities from the "right-of-way" to the building or improvement are excluded.);

d. Relettering signs and replacing stationery on hand at the time of displacement that are made obsolete as result of the move;

e. Any license, permit or certification required of the displaced person at the replacement location. However, the payment may be based on the remaining use life of the existing license, permit, or certification;

f. Other moving-related expenses that are not listed as ineligible as the developer determines to be reasonable and necessary.

2. In lieu of actual moving and related expenses, a fixed payment in the amount of $1,500.00.

3. In lieu of the payments set forth in Subsections B.1 and 2 of this section, if the displaced person elects to take full responsibility for the move of the business, the developer may make a payment for the person's moving expenses in an amount not to exceed the lower of two acceptable bids or estimates obtained by the developer, less 15% for profit and overhead. At the developer's discretion, a payment for a low cost or uncomplicated move may be based on a single bid or estimate. (1994 C., § 11.05.140; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.150 Requirements for receipt of payments for actual reasonable moving and related expenses.

The following requirements shall apply to the claims for actual reasonable moving and related expenses (as provided in Section 11.05.130.A and 11.05.140B.1 and 3):

A. The displaced person shall provide such documentation as may be reasonably required by the devel-

oper to establish the actual expenses incurred, such as invoices, receipts, certified prices, appraisals, or other evidence of such expenses. The developer must provide reasonable assistance necessary to enable all displaced persons to complete and file any required claim for payment.

B. The displaced person must provide the developer with not less than ten (10) days' advance written notice of the approximate date of the start of the move or disposition of the personal property and a list of the items to be moved.

C. The displaced person must permit the developer to make reasonable and timely inspections of the personal property at both the displacement and replacement sites and to monitor the move. (1994 C., § 11.05.150; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.160 Ineligible moving and related expenses.

A displaced person is not entitled to payment for:

A. The cost of moving any structure or other real property improvement in which the displaced person reserves ownership; or

B. Interest on a loan to cover moving expenses; or

C. Loss of goodwill; or

D. Loss of profits; or

E. Loss of trained employees; or

F. Any additional operating expenses of a business incurred because of operating in a new location; or

G. Any legal fee or other cost for preparing a claim for a relocation payment or for representing the claimant before the developer; or

H. Physical changes to the real property at the replacement location. (1994 C., § 11.05.160; Ord. No. 62481, § 1 Exh. A(part), 1991.)

11.05.170 Waiver of benefits.

Any displaced person who is also the owner of the real property may waive relocation payments as part of the negotiations for acquisition of the interest held by such person. Such waiver shall be in writing, shall disclose the person's knowledge of the provisions of the Policy and his entitlement to payment and shall be filed with the Public Agency and SLDC. (1994 C., § 11.05.170; Ord. No. 62481, § 1 Exh. A(part), 1991.)

Chapter 11.06

REDEVELOPMENT PROCEDURES FOR BLIGHTED AREAS

Editor's Note:

References to the city plan commission have been updated editorially to refer to the community development commission.

City Counselor Ops.: 8750, 8774, 9014, 9310, 9501, 9921, 10291, 10309, 10446, 10459

Sections:

11.06.010 Statement of public interest.

11.06.020 Definitions.

11.06.030 Proposed ordinance—Referral.

11.06.040 Proposed ordinance—Notification.

11.06.050 Proposed ordinance—Community Development Commission recommendations.

11.06.060 Effect of enacting ordinance.

11.06.070 Development plan—Filing.

11.06.080 Development plan—Contents.

11.06.090 Community Development Commission—Duties.

11.06.100 Community Development Commission—Rights.

11.06.110 Community Development Commission—Recommendations—Transmittal.

11.06.120 Community Development Commission—Recommendations—Contents.

11.06.130 Community Development Commission—Recommendations—More than one plan.

11.06.140 Mayor recommendations.

11.06.150 Public hearing.

11.06.160 Time limit for consideration by Board of Aldermen.

11.06.170 Development plan when there is no existing plan.

11.06.180 Eminent domain—Determination.

11.06.190 Eminent domain—Deposit—Required.

11.06.200 Eminent domain—Deposit—Safe deposit box.

11.06.210 Eminent domain—Deposit—Excess.

11.06.220 Eminent domain—Certificate of public convenience and necessity.
11.06.230 Development plan ordinance—Contents.
11.06.240 Agreement—Permits.
11.06.250 Work inspection reports—Contents.
11.06.260 Work inspection reports—Certificate of completion.
11.06.270 Certificate of completion—Review.
11.06.280 Certificate of completion—Discharge of surety.
11.06.290 Certificate of completion—Request denied.
11.06.300 Tax exempt status—Financial statement.
11.06.310 Tax exempt status—Determination.
11.06.320 Tax exempt status—Granting.
11.06.330 Tax exempt status—Denial.
11.06.340 Building permits.
11.06.350 Sale of property.
11.06.360 Urban Redevelopment Corporations Law adopted.
11.06.370 Applicability.

11.06.010 Statement of public interest.

It is determined and declared by the Board of Aldermen that in certain portions of the City obsolete, deteriorating, substandard, insanitary or blighted areas, exist occasioned by inadequate planning, excessive land coverage, lack of proper light, air or open space, defective design or arrangement of buildings, lack of proper sanitary facilities, or the existence of buildings, which, by reason of age, obsolescence, inadequate or outmoded design, or physical deterioration, have impaired the economic value of areas, infecting them with blight, and such areas are characterized by depreciated values, impaired investments, reduced or negligible income and consequent tax delinquencies; that such conditions exist in areas where obsolete, deteriorating, substandard, insanitary, outworn or outmoded industrial, commercial or residential buildings prevail, and the same are conducive to economic and social liabilities, ill health, transmission of disease, infant mortality, juvenile delinquency and crime; that such conditions occur chiefly in areas which are subdivided into small parcels with multiple ownership and frequently with confusion as to titles; that their assembly for purposes of clearance, replanning, rehabilitation, reconstruction and redevelopment is difficult and costly; that the existence of such conditions and the failure to clear, replan, rehabilitate, reconstruct or redevelop these areas results in progressive deterioration, in a loss of population by the areas, causes a wasteful expenditure of public funds for policing, and occasions large outlays for the creation of public facilities and services elsewhere; that it is impossible and uneconomical for individual owners to independently undertake to remedy such conditions; such conditions require the employment of capital on an investment basis, allowing, however, the widest latitude in the amortization of any indebtedness created thereby; that such conditions further require the acquisition of adequate areas, at fair prices, the clearance of such areas through demolition of existing obsolete, deteriorating, inadequate, unsafe or insanitary buildings and the redevelopment of such areas under proper supervision with appropriate planning as to land use, traffic circulation and construction policies; that the clearance, replanning, rehabilitation, reconstruction and redevelopment of such areas on a large scale basis are necessary for the public welfare and are public uses and purposes for which private property may be acquired by purchase or eminent domain; and that such obsolete, deteriorating, substandard, insanitary and blighted areas constitute a menace to the health, safety, morals and welfare of the citizens of the City. Therefore, the necessity for the provisions herein enacted is hereby declared as a matter of legislative determination to be in the public interest. (1960 C., § 29.010; 1994 C., § 11.06.010; Ord. No. 49583, § 1, 1959.)

Constitution:

Art. VI § 21 Reclamation of blighted, substandard or insanitary areas

RSMo:

RSMo 99.300 et seq. (2016) Land clearance for redevelopment law.

RSMo 353.010 et seq. (2016) Urban redevelopment corporation law.

Cases:

The land clearance for redevelopment law does not violate constitutional prohibitions against taking private prop-

erty for private use without consent of owner. Land Clearance for Redevelopment Authority of *City of St. Louis v. City of St. Louis,* 270 S.W. 2d 58 (1954).

Redevelopment authority's sale of land to university controlled by religious denominations was lawful. *Kintzele v. St. Louis,* 347 S.W. 2d 695 (1961).

Convention center, the use of which would not be confined to conventions, was a permitted "commercial" use under urban redevelopment plan. *Carr Central Neighborhood v. U.S. Dept. of Housing,* 424 F. Supp. 1194 (1976).

Approval of redevelopment plan and grant of eminent domain by ordinance was void for failure of the plan to contain a detailed statement of financing. *Maryland Plaza Redevelopment v. Greenberg,* 594 S.W. 2d 284 (1979).

Although financing statement in development plan submitted by realtor was somewhat general, it was not so indefinite as to violate the requirement of the redevelopment enabling ordinance that a "detailed statement of the proposed method of financing" be submitted. State ex rel. *Devanssay v. McGuire,* 622 S.W. 2d 323 (Mo. App. 1981).

Ordinance conferring redevelopment rights upon a developer and granting him power of eminent domain was held valid against contention that use of eminent domain would serve no public purpose, that the ordinances authorized the taking of a fee when a lesser interest would accomplish the purpose, that the development plan on file did not contain a sufficiently detailed statement of financing, and that the redevelopment agreement contained in the ordinance lacked mutuality of obligation. *Schweig v. Maryland Plaza Redevelopment Corp.,* 676 S.W. 2d 249 (Mo. App. 1984).

A writ of prohibition will lie to review the claim that a redevelopment corporation, as condemnor, failed to comply with conditions precedent to the exercise the condemnation power and that if condemnation is improperly granted an appeal would be an inadequate remedy because the condemnor would exercise its rights of possession under state law. *State ex rel. Terrell v. Nicholls,* 719 S.W. 2d 862 (Mo. App. 1986).

McQuillin:

24.563 et seq. Regulations of housing and urban renewal

11.06.020 Definitions.

The following terms whenever used or referred to in this chapter shall, unless a different intent clearly appears from the context, be construed to have the following meanings:

A. "Area" means that portion of the City which the legislative authority of the City has found or shall find to be blighted, so that the clearance, replanning, rehabilitation, or reconstruction thereof is necessary to effectuate the purposes of this law. Any such area may include buildings or improvement not in themselves blighted, and any real property whether improved or unimproved, the inclusion of which is deemed necessary for the effective clearance, replanning, reconstruction or rehabilitation of the area of which such buildings, improvements or real property form a part;

B. "Blighted area" means that portion of the City which the Board of Aldermen determines that by reason of age, obsolescence, inadequate or outmoded design or physical deterioration, existing properties and improvements, have become economic and social liabilities, and that such conditions are conducive to ill health, transmission of disease, crime or inability to pay reasonable taxes;

C. "City" means the City of St. Louis;

D. "Construction work" means the taking of possession of land, clearance of the area, erection of improvements and all other related matters to effectuate an approved development plan causing the physical rehabilitation, construction, reconstruction and redevelopment of the area;

E. "Corporation" means an urban redevelopment corporation organized and existing under and pursuant to the provisions of the "Urban Redevelopment Corporations Law";

F. "Cost" means the amount stated in the approved development plan which is determined to be the estimated or actual expenses to the Urban Redevelopment Corporation in the redevelopment project and shall include, among other expenses, interest during construction, the estimated or actual expense of demolition of existing structures, the estimated or actual expense of utilities, landscaping and roadways, the estimated or actual expense of construction, equipment and furnishing of buildings and improvements, including architectural, engineering and builder's fees, the estimated or actual expense of reconstruction, rehabilitation, redevelopment, remodeling, or initial repair of existing buildings and improvements, reasonable management and operation expenses until the project is ready for its proposed use, as provided for in the approved development plan, and the estimated or actual expense of improving those portions of the area which are to remain open spaces, together with additional expense incurred as a result of additions to or changes in the development plan where such additions or changes are approved by ordinance;

G. "Development plan" means a plan, together with any amendments thereto, for the development of all or any part of a blighted area;

H. "Real property" includes lands, buildings, improvements, land under water, waterfront property, and

any and all easements, franchises and hereditaments, corporeal or incorporeal, and every estate, interest, privilege, easement, franchise and right therein, or appurtenant thereto, legal or equitable, including restrictions of record, created by plat, covenant, or otherwise, rights-of-way, and terms for years;

I. "Redevelopment" means the clearance, replanning, reconstruction or rehabilitation of any blighted area, and the provision for such industrial, commercial, residential or public structures and spaces as may be appropriate, including recreational and other facilities incidental or appurtenant thereto;

J. "Urban Redevelopment Corporations Law" means RSMo Ch. 353 (1949), as amended. (1960 C., § 29.020; 1994 C., § 11.06.020; Ord. No. 49583, § 2, 1959.)

11.06.030 Proposed ordinance—Referral.

Upon the introduction into the Board of Aldermen of a proposed ordinance declaring an area blighted in the City, such proposed ordinance shall be referred by the Clerk of the Board of Aldermen to the Community Development Commission for study and recommendation. (1960 C., § 29.030; 1994 C., § 11.06.030; Ord. No. 49583, § 3(part), 1959.)

Charter:

Art. I § 1(9) Eminent domain

XXI Eminent domain

11.06.040 Proposed ordinance—Notification.

The Community Development Commission shall forthwith, in writing, notify the Mayor and the Executive Director of the Land Clearance for Redevelopment Authority that it has such a bill under consideration. (1960 C., § 29.040; 1994 C., § 11.06.040; Ord. No. 49583, § 3(a), 1959.)

11.06.050 Proposed ordinance—Community Development Commission recommendations.

The Community Development Commission shall transmit its recommendations to the Board of Aldermen within sixty days after receipt of the proposed ordinance. Provided that any recommendation to declare the area blighted shall contain a determination that the area is blighted as defined by Section 11.06.020 and redevelopment of the area under RSMo Ch. 353 (1949), as amended, and this chapter is necessary and in the public interest. Provided, however, no referral of a board bill to the Community Development Commission is necessary in the event the introduction of the bill is accompanied by a recommendation containing the above determination from the Community Development Commission. (1960 C., § 29.050; 1994 C., § 11.06.050; Ord. No. 49583, § 3(b), 1959.)

11.06.060 Effect of enacting ordinance.

In the enactment of an ordinance declaring an area blighted, the Board of Aldermen shall find that the area is in fact blighted, as "blighted area" is defined in Section 11.06.020, and shall find redevelopment of the area is necessary and in the public interest under RSMo Ch. 353 (1949), as amended, and under this chapter. (1960 C., § 29.060; 1994 C., § 11.06.060; Ord. No. 49583, § 3(c), 1959:

11.06.070 Development plan—Filing.

Any urban redevelopment corporation desirous of participating in the redevelopment of an area or part of an area designated a blighted area shall file a development plan with the Community Development Commission; provided, however, no development plan shall be considered by the Community Development Commission:

A. Which is not filed within one hundred twenty days following the date the ordinance declaring the area blighted becomes law. Provided, however, that in the event no development plan for all or part of the area is submitted within the said one hundred twenty days' period, then at the time of the submission of a development plan for all or a part of a blighted area, the Community Development Commission shall cause to be published in the City Journal notice that such a development plan has been submitted and no other development plan containing all or a part of the common land area covered in such plan shall be considered by the Community Development Commission which is not filed within sixty days after submission of such development plan. Provided, further, nothing contained herein shall be construed as prohibiting the submission of a development plan prior to a declaration of blight.

B. Which does not have attached thereto a certificate from the secretary of state that such corporation submitting the development plan is a lawfully organized and existing Missouri urban redevelopment corporation under and pursuant to the Urban Redevelopment Corporation Law. (1960 C., § 29.070; 1994 C., § 11.06.070; Ord. No. 56474, § 1, 1973; Ord. No. 49583, § 4, 1959.)

City Counselor Ops.: 9323, 9454

11.06.080 Development plan—Contents.

A development plan shall contain:

A. A general description and preliminary design plan of the proposed project showing the proposed land use and traffic circulation;

B. A legal description of the development area by metes and bounds or other definite designation;

C. A statement of the various stages, if more than one is intended, by which the development is proposed to be constructed or undertaken, and with the approximate time limit for the commencement and completion of each stage, together with a legal description by metes and bounds or other definite designation of the real property to be included in each stage;

D. A statement of the existing buildings or improvements in the development area to be demolished immediately, if any;

E. A statement of existing buildings or improvements in the development area not to be demolished immediately, if any, and the approximate period of time during which the demolition, if any, of each such building or improvement is to take place;

F. A statement of the proposed improvements, if any, to each building not to be demolished immediately, any proposed repairs or alterations to such buildings, and the approximate period of time during which such improvements, repairs or alterations are to be made;

G. A statement of the type, number, and character of each new industrial, commercial, residential or other building or improvement to be erected or constructed;

H. A statement of those portions, if any, of the blighted area which may be permitted or will be required to be left as open space, the use to which each open space is to be put, the period of time each such open space will be required to remain an open space and the manner in which it will be improved and maintained, if at all;

I. A statement of those portions, if any, of the blighted area which are proposed to be sold, donated, exchanged or leased to the Board of Education, Public Library Board, Art Commission or any other public agency, and an outline of the terms of such proposed sale, donation, exchange or lease;

J. A statement of the proposed changes, if any, in zoning ordinances or maps, necessary or desirable for the redevelopment, and its protection against blighting influences;

K. A statement of the proposed changes, if any, in existing easements in streets or street levels, and any proposed street closings;

L. A statement of the character of the existing dwelling accommodations, if any, in the blighted area, the approximate number of families residing therein, together with a schedule of the rentals being paid by them, and a schedule of the vacancies in such accommodations, if any, together with the rentals demanded where such vacancies exist;

M. A statement of the proposed plan for the relocation of those families who will be displaced by the development project;

N. A statement of the character, type and quality of construction, approximate number of units, approximate rentals and approximate date of availability of the proposed dwelling accommodations, if any, to be offered during the construction by each stage, if so, and upon completion of the redevelopment;

O. A detailed statement of the proposed method of financing the redevelopment which shall set forth the estimated cost of the project, as defined in Section 11.06.020.F, and the proposed sources of funds, debt and equity, to meet such estimated cost;

P. A statement of the persons who it is proposed will be active in or associated with the management of the redevelopment project during a period of at least one year from the date of the approval of the development plan;

Q. A statement giving the legal description of the real property owned or under option or contract of purchase, if any, or where known to be acquired by eminent domain;

R. A statement giving the legal description of the real property, if any, proposed to be purchased or acquired by eminent domain by the City in behalf of the proponents of the development plan and the reasons why the aid of the City is sought for this purpose;

S. A statement listing any real property in public use and belonging to the City, county, state or any political subdivision thereof, together with the consent of such authority to the acquisition of such property;

T. A statement that the developer and its heirs, assigns and successors admit the language, intent and purpose regarding fair employment practices as presently contained in the provisions of Ordinance No. 47957 apply to the plan, that it will be bound thereby and will comply with the terms and spirit of said ordinance;

U. A statement that the developer and its heirs, assigns and successors will, at all times, make all facilities in the developed area available to the general public without regard to race, religion, color or national origin;

V. The development plan shall also contain such other statements or exhibits as may be deemed relevant by the Community Development Commission or by the proposer thereof. (1960 C., § 29.080; 1994 C., § 11.06.080; Ord. No. 58073, § 1, 1980; Ord. No. 49583, § 5, 1959.)

Editor's Note:

Ordinance 47597 was repealed by Ordinance 51617.

Section 2 of Ord. 58073 provided:

Section Two. Any Development Plan heretofore approved by ordinance may, upon application to and approved by the Board of Aldermen, be amended so as to comply with the provisions of Section One herein.

Cases:

Failure of redevelopment plan to contain a statement as to the proposed use of subject property was a violation of the procedural requirements of this chapter. *Maryland Plaza Redevelopment v. Greenberg,* 594 S.W. 2d 284 (1979).

Although financing statement in development plan submitted by realtor was somewhat general, it was not so indefinite as to violate the requirement of the redevelopment enabling ordinance that a "detailed statement of the proposed method of financing" be submitted. *State ex rel. Devanssay v. McGuire,* 622 S.W. 2d 323 (Mo.App. 1981).

Ordinance conferring redevelopment rights upon a developer and granting him power of eminent domain was held valid against contention that use of eminent domain would serve no public purpose, that the ordinance authorized the taking of a fee when a lesser interest would accomplish the purpose, that the development plan on file did not contain a sufficiently detailed statement of financing, and that the redevelopment agreement contained in the ordinance lacked mutuality of obligator. *Schweig v. Maryland Plaza Redevelopment Corp.,* 676 S.W. 2d 249 (Mo.App. 1984).

City Counselor Ops.: 9861

11.06.090 Community Development Commission—Duties.

Upon submission to the Community Development Commission of a development plan for study and recommendation the Community Development Commission shall:

A. Forthwith notify in writing the Mayor, the Board of Aldermen, and the Executive Director of the Land Clearance for Redevelopment Authority that a development plan has been submitted for consideration;

B. Transmit the development plan to the Executive Director of the Land Clearance for Redevelopment Authority for their study and recommendation pursuant to an agreement entered into between the City and the Land Clearance for Redevelopment Authority made in pursuance of ordinance duly enacted therefor by the City. (1960 C § 29.090; 1994 C., § 11.06.090; Ord. No. 49583, § 6(1), 1959.)

11.06.100 Community Development Commission—Rights.

The Community Development Commission may:

A. Transmit with instructions where necessary all or a portion of the development plan to any department or commission of the City with a request for study and recommendation;

B. Request in writing to the Urban Redevelopment Corporation any additional information relative to any facet of the development plan. In the event the Urban Redevelopment Corporation fails to supply the requested information within fifteen days from date of request the Corporation's development plan shall be disqualified from further consideration; provided, however, upon written request of the Urban Redevelopment Corporation an additional time may be granted by the Community Development Commission. Nothing contained herein shall be construed as in any manner prohibiting any person or persons assigned to study a development plan from consulting with officers and employees of the Urban Redevelopment Corporation relative to the development plan;

C. Make additional rules and regulations which may be deemed necessary by said Commission for furthering the intent of this chapter. (1960 C., § 29.100; 1994 C., § 11.06.100; Ord. No. 49583, § 6(II), 1959.)

11.06.110 Community Development Commission—Recommendations—Transmittal.

The recommendation of the Community Development Commission shall be transmitted to the Mayor and to the proper committee of the Board of Aldermen within ninety days from the last date on which a development plan for the particular blighted area may be submitted and at no other time. Provided, however, in the event more than one development plan covering the same common land area, in whole or in part, is transmitted to the Community Development Commission then the analysis, reports and recommendations concerning all development plans shall be submitted on the

same date. (1960 C., § 29.110; 1994 C., § 11.06.110; Ord. No. 49583, § 7(I), 1959.)

11.06.120 Community Development Commission—Recommendations—Contents.

The recommendation of the Community Development Commission shall contain a determination of the following conditions and state the reasons therefor:

A. Whether the public purpose as declared in this chapter will be effectuated by the development plan;

B. Whether the development plan is in the public interest;

C. Whether the development plan will be in accord with the overall redevelopment of the blighted area;

D. Whether the development plan is consistent with the comprehensive plan for City;

E. Whether the size of the area proposed by the development plan will allow a practical and economically satisfactory development;

F. Whether the stages, if any, by which reconstruction of the area is proposed by the development plan will allow a practical and economically satisfactory development;

G. Whether housing accommodations are or will soon be elsewhere available for all families who will be displaced by the redevelopment project and the development plan will accomplish such purpose;

H. Whether public facilities, including, but not limited to, school, fire, water, sewer, police, transportation, park, playground and recreation, and other utilities private or public are presently adequate, or will be adequate, at the time the redevelopment is ready for use to service the area;

I. Whether the proposed changes, if any, in zoning ordinances or maps are necessary or desirable for the redevelopment of the area and its protection against blighting influences and for the City as a whole;

J. Whether the proposed changes, if any, in streets and street levels or any proposed street closings are necessary or desirable for the redevelopment of the area and its protection against blighting influences and for the City as a whole;

K. The estimated cost of acquisition of real property, if any, which it is proposed the City will acquire for proponents of the development plan, by the exercise of the power of eminent domain. (1960 C., § 29.120; 1994 C., § 11.06.120; Ord. No. 49583, § 7(II), 1959.)

11.06.130 Community Development Commission—Recommendations—More than one plan.

In the event more than one development plan containing the same common land area in whole or in part is submitted to the Community Development Commission then, in such event, the recommendation shall:

A. Include the above determinations as to each plan;

B. Contain a comparative analysis of the development plans based on the above determinations;

C. Discuss in detail the conclusions drawn from the said comparative analysis;

D. Recommend which development plan, if any, is best suited to the public interest. (1960 C., § 29.130; 1994 C., § 11.06.130; Ord. No. 49583, § 7(III), 1959.)

11.06.140 Mayor recommendations.

After consideration of the transmitted plan by the Mayor and the proper committee of the Board of Aldermen, a conference between them shall be had to discuss, determine and resolve if possible, all matters relevant to the plan wherein a disagreement is found to exist between the Mayor and the Committee or any of its members, following which and within forty-five days after the transmission provided in Section 11.06.110, the Mayor shall transmit his recommendations thereon to the Board of Aldermen and may therein:

A. Make additional recommendations giving his reasons therefor;

B. Traverse the recommendation, analysis or report of the Community Development Commission in whole or in part giving his reasons therefor;

C. Make suggestions and recommend changes in any plan which has been disapproved by the Community Development Commission. (1960 C., § 29.140; 1994 C., § 11.06.140; Ord. No. 49583, § 8, 1959.)

City Counselor Ops.: 8593, 9547

11.06.150 Public hearing.

Upon introduction of a bill having as its subject matter a development plan into the Board of Aldermen, the committee to which such bill is properly referred to for consideration may hold a public hearing thereon. If a public hearing is called or held, the entire cost of publishing notice of said hearing will be paid by the Urban Redevelopment Corporation which has sponsored or the urban redevelopment corporations which have sponsored the redevelopment plan or plans which is or are embodied in the bill or bills for which the

hearing is held. (1960 C., § 29.150; 1994 C., § 11.06.150; Ord. No. 56474, § 2, 1973; Ord. No. 49583, § 9, 1959.)

11.06.160 Time limit for consideration by Board of Aldermen.

Any bill having as its subject matter a development plan shall be considered and acted upon by the Board of Aldermen within six (6) months from the date said bill was introduced in the Board of Aldermen. Any development plan which has not been acted upon by the Board of Aldermen within the said six (6) months' period, shall be taken as denied by the Board of Aldermen. (1960 C., § 29.160; 1994 C., § 11.06.160; Ord. No. 49583, § 10, 1959.)

City Counselor Ops.: 9562

11.06.170 Development plan when there is no existing plan.

In the event there is a blighted area or portion of a blighted area where no development plan or plans for such an area's redevelopment is under consideration by the Community Development Commission, the Mayor or the Board of Aldermen by reason of the Board of Aldermen's failure to act or its act or acts disapproving any such transmitted development plan or plans, then any urban redevelopment corporation desirous of participating in the redevelopment of such a blighted area or part of such a blighted area shall file a development plan with the Community Development Commission; provided, however, no development plan shall be considered by the Community Development Commission:

A. Which is not filed within one hundred twenty (120) days after submission of the first development plan under the provisions of this section to the Community Development Commission covering the same common land area, in whole or in part, provided that at the time of the submission of the first development plan under this section the Community Development Commission shall cause to be published in the City Journal notice that such a development plan has been submitted;

B. Which does not fully comply with the provisions and requirements set forth and contained in Section 11.06.070.

The submission of a development plan under this section shall be considered and recommendations made in the same manner as provided in this chapter for a development plan submitted under the provisions of Section 11.06.070. (1960 C., §§ 29.170, 29.180; 1994 C., § 11.06.170; Ord. No. 49583, § 11, 1959.)

11.06.180 Eminent domain—Determination.

The Board of Aldermen may determine it is in the public interest and serves the public purpose as expressed in this chapter that the power of eminent domain be used by the City or the Urban Redevelopment Corporation or both in acquisition of all or part of the real property included in a development plan. (1960 C., § 29.190; 1994 C., § 11.06.180; Ord. No. 49583, § 12(part), 1959.)

Cases:

Where a developer failed to provide property owners with notice as required by the ordinance granting it the power of eminent domain, it was not authorized to condemn the property owner's holdings. *State ex rel. Terrell v. Nicholls,* 719 S.W.2d 862 (1986).

11.06.190 Eminent domain—Deposit—Required.

In the event that the Board of Aldermen shall determine it is in the public interest that the City acquired by eminent domain or otherwise all or part of the real property in the area included in the development plan and for the purpose expressed in the development plan then the Urban Redevelopment Corporation shall deposit in escrow with the Comptroller a sum of money in cash, a negotiable cashier's check or checks or negotiable federal or municipal securities equal to the estimated cost as determined in the ordinance approving the development plan within ten (10) days after said ordinance becomes law. The term "cost" as used in this section and as herein defined includes all expenditures made by the City under this section, including services of the City law department, what is paid for such real property, appraisals, abstract, title and recording fees, court costs, witness fees, expenses incurred by the Board of Public Service and all other expenses of acquiring such property. (1960 C., § 29.200; 1994 C., § 11.06.190; Ord. No. 49583, § 12(a part), 1959.)

11.06.200 Eminent domain—Deposit—Safe deposit box.

All securities deposited in escrow with the Comptroller shall be promptly placed by him in a safe deposit box under the joint control of the Comptroller and the City Treasurer. (1960 C., § 29.210; 1994 C., § 11.06.200; Ord. No. 49583, § 12(a part), 1959.)

11.06.210 Eminent domain—Deposit—Excess.

In the event the deposit of the estimated costs exceeds the final actual cost of acquisition as defined herein then the balance of the deposit shall be used to satisfy in part or in full any legal obligation which the

Urban Redevelopment Corporation may owe the City. Any balance thereafter remaining shall be returned to the Urban Redevelopment Corporation within thirty (30) days after a final determination, judicial or otherwise, and payment thereof of the price to be paid for the real property. Provided further, upon payment of all costs to the City by the Urban Redevelopment Corporation, the City shall by quitclaim deed, convey all real property acquired by it through eminent domain or otherwise to the Urban Redevelopment Corporation. (1960 C., § 29.220; 1994 C., § 11.06.210; Ord. No. 49583, § 12(a part), 1959.)

11.06.220 Eminent domain—Certificate of public convenience and necessity.

In the event the Board of Aldermen shall determine it is in the public interest that the Urban Redevelopment Corporation be granted the authority and power to acquire real property and incidents thereto pertaining within the area included in the development plan by eminent domain, the Board of Aldermen shall grant a certificate of public convenience and necessity to said corporation authorizing and empowering the said corporation to acquire by eminent domain or otherwise all or any part of the real property for the purpose expressed in the development plan in the area included in the development plan. Such corporation shall have the authority and powers of eminent domain as set forth in RSMo 353.130, paragraph 3 (1949). (1960 C., § 29.230; 1994 C., § 11.06.220; Ord. No. 49583, § 12(b), 1959.)

11.06.230 Development plan ordinance—Contents.

Every ordinance approving a development plan shall contain:

A. A finding and declaration that the development plan is in the public interest;

B. A provision for liquidated damages to be assessed in favor of the City upon the failure of the Urban Redevelopment Corporation to complete the development project within the time agreed upon by parties;

C. A provision setting forth such performance bond, completion assurance agreement, or other surety or security requirements as the Board of Aldermen may determine to be appropriate in respect of the feasibility of the particular project, taking into account the proposed financing arrangements therefor and the interest or involvement therein, directly or indirectly, of the City or any federal, state or local agency, department, bureau, authority, commission or similar public entity. Any existing ordinance heretofore approving a development plan may be amended consistent herewith. The references to discharge of the surety on the performance bond as provided for in Section 11.06.280 and Section 11.06.290 shall be deemed to mean and shall include such other or alternative surety or security requirements as may be provided for under this subsection in any ordinance approving a development plan or in any amendment to an existing ordinance as herein provided;

D. A provision limiting the use of the area included in the development plan to that use described in the approved development plan for a period not less than twenty-five (25) years;

E. An acceptable relocation plan for the families displaced by the development plan;

F. A provision determining the necessity for the granting of the power of eminent domain and in the event such necessity is found to exist, the granting of such power pursuant to Sections 11.06.180—11.06.220;

G. A provision that the developer and its heirs, assigns and successors admit the language, intent and purpose regarding fair employment practices as presently contained in the provisions of Ordinance No. 47957 apply to the plan, that it will be bound thereby and will comply with the terms and spirit of said ordinance;

H. A provision that the developer and its heirs, assigns and successors will, at all times, make all facilities in the development area available to the general public without regard to race, religion, color or national origin;

I. Other matters which are required by this chapter or deemed necessary and in the public interest. (1960 C., § 29.240; 1994 C., § 11.06.230; Ord. No. 58073, § 3, 1980; Ord. No. 49583, § 13, 1959.)

Editor's note:

Ordinance 47957 was repealed by Ordinance 51617.

City Counselor Ops.: 9861

11.06.240 Agreement—Permits.

Upon enactment into law of an ordinance approving a development plan:

A. The City shall enter into an agreement with the Urban Redevelopment Corporation pursuant to the terms and conditions set forth in this chapter and the

ordinance approving the development plan. The form of said agreement shall be approved by the Law Department of the City;

B. The urban redevelopment corporation shall obtain all necessary permits as prescribed by law and perform other necessary acts as required by this chapter or the ordinance approving the development plan. (1960 C., § 29.250; 1994 C., § 11.06.240; Ord. No. 49583, § 14, 1959.)

City Counselor Ops.: 9562, 9861

11.06.250 Work inspection reports—Contents.

Upon enactment into law of an ordinance approving a development plan the President of the Board of Public Service shall assign the duty of inspecting the construction work on the project to the departments which by law have jurisdiction over the type of construction or which have jurisdiction over public facilities which are directly or indirectly affected by the construction of the development project. Any department which is assigned to so investigate shall make a written report to be filed with the President of the Board of Public Service. Such report shall contain the following:

A. General description of the progress and type of work surveyed;

B. The stages of the development plan which have been completed and whether construction work in progress will meet the time limits of the stages set forth in the aforesaid agreement;

C. Such other information the President of the Board of Public Service may require by rules and regulations;

D. Such other information the department deems necessary and relevant. (1960 C., § 29.260; 1994 C., § 11.06.250; Ord. No. 49583, § 15(part), 1959.)

11.06.260 Work inspection reports—Certificate of completion.

Such reports shall be filed six months from the date of assignment and every six months thereafter. The President of the Board of Public Service may at his discretion require interim reports. A copy of all reports shall be filed with the Clerk of the Board of Aldermen. The urban redevelopment corporation may, from time to time, request certification of completion of the stages in the development plan approved by ordinance. Upon granting a certificate of completion for a stage of construction and development, the President of the Board of Public Service may recommend that the amount of the performance bond or such other surety or security as may be required under Section 11.06.230.C be reduced proportionately to the remaining cost. (1960 C., § 29.270; 1994 C., § 11.06.260; Ord. No. 58073, § 4, 1980; Ord. No. 49583, § 15(part), 1959.)

City Counselor Ops.: 8822

11.06.270 Certificate of completion—Review.

Upon the written request of the urban redevelopment corporation to the President of the Board of Public Service that said President issue a certificate of completion of the project, said President shall review all inspection reports submitted and may make an additional investigation he shall deem necessary. (1960 C., § 29.280; 1994 C., § 11.06.270; Ord. No. 49583, § 16(part), 1959.)

11.06.280 Certificate of completion—Discharge of surety.

In the event that the President of the Board of Public Service determines the project has been completed in substantial compliance with the approved development plan then the President shall notify the Comptroller of this decision within thirty days. The Comptroller shall forthwith discharge the surety on the performance bond. (1960 C., § 29.290; 1994 C., § 11.06.280; Ord. No. 49583, § 16(a), 1959.)

11.06.290 Certificate of completion—Request denied.

In the event that the President of the Board of Public Service determines that the project has not been completed, then the President shall transmit notice by registered mail, return receipt requested, to the corporation stating the reasons for the finding that there has not been substantial compliance; provided, however, failure to so notify the urban redevelopment corporation within thirty days after receipt of the said written request shall be deemed a certification of completion and upon presentation of such evidence to the Comptroller, the Comptroller shall forthwith discharge the surety on the performance bond. (1960 C., § 29.300; 1994 C., § 11.06.290; Ord. No. 49583, § 16(b), 1959.)

11.06.300 Tax exempt status—Financial statement.

An urban redevelopment corporation whose development plan has been approved by ordinance and who desires to obtain the benefits of tax exemption status contained in RSMo 353.110 (1949), shall file with the Comptroller a financial statement prepared by a certified public accountant, as follows:

A. Such statement shall be filed annually within 180 days following the close of said corporation's fiscal

year, and the first such statement shall be filed for such corporation's fiscal year ending in the calendar year next following the calendar year in which the ordinance approving the development plan became law.

B. The financial statement shall:

1. Follow an accepted accounting procedure;

2. Contain an operating profit and loss statement;

3. Contain other information the Comptroller by rule or regulation, shall require;

4. Be duly attested to by the president and the treasurer of said corporation as an accurate and truthful representation of the said corporation's financial condition. (1960 C., § 29.310; 1994 C., § 11.06.300; Ord. No. 58073, § 5, 1980; Ord. No. 49583, § 17(a, b), 1959.)

City Counselor Ops.: 8822, 9655, 9756, 9862

11.06.310 Tax exempt status—Determination.

The Comptroller shall review all financial statements submitted to him. He shall determine the net income of the urban redevelopment corporation and shall determine whether the accumulation of surplus net earnings as defined by law, if any, is being handled as provided by law.

In the event such corporation's net income is not more than the maximum allowed by law or in the event the corporation's net income during any year is more than the maximum allowed by law and the accumulation of surplus net earnings is being handled as provided by law, then the Comptroller shall certify to the Assessor of the City on or before April 1 of each year following the years the statement was required to be submitted under this section, that the urban redevelopment corporation is eligible for the tax exemption provisions contained in the "Urban Redevelopment Corporation Laws" and found in RSMo 353.110 (1949), as amended.

In the event the corporation's net income is more than the maximum allowed by law, and the surplus is not being handled as provided by law, then the Comptroller shall certify to the Assessor of the City on or before April 1 of the year following the year in which the statement was required to be submitted under this section that such corporation is not eligible under the tax exemption provisions contained in RSMo 353.110. (1960 C., § 29.320; 1994 C., § 11.06.310; Ord. No. 49583, § 17(c), 1959.)

City Counselor Ops.: 9655, 9862

11.06.320 Tax exempt status—Granting.

In the event that the certification grants tax exemption status, in whole or in part, to property owned by the urban redevelopment corporation under RSMo 353.110, the Assessor shall forthwith reassess, in whole or in part, the property of the urban redevelopment corporation. (1960 C., § 29.330; 1994 C., § 11.06.320; Ord. No. 49583, § 17(d), 1959.)

City Counselor Ops.: 9655, 9862

11.06.330 Tax exempt status—Denial.

In the event that certification states that tax exempt status cannot be granted to the urban redevelopment corporation, then the Assessor shall forthwith assess all property of the urban redevelopment corporation at its true value as provided by law. (1960 C., § 29.340; 1994 C., § 11.06.330; Ord. No. 49583, § 17(e), 1959.)

City Counselor Ops.: 8822, 9655, 9862

11.06.340 Building permits.

In the event an ordinance approves a development plan for an area, then the Building Commissioner shall not issue a building permit for construction in the area unless the building plans are found by the President of the Board of Public Service to be in substantial compliance with the approved development plan as amended, modified or changed by ordinance, if so, for a period of twenty-five years from the date the ordinance approving the development plan becomes law. (1960 C., § 29.350; 1994 C., § 11.06.340; Ord. No. 49583, § 18, 1959.)

City Counselor Ops.: 9655, 10474

11.06.350 Sale of property.

In the event the urban redevelopment corporation shall by sale or as otherwise provided in RSMo 353.150, Paragraph 4 (1949), dispose of its real property in whole or in part, acquired by it pursuant to an approved development plan, then the Assessor of the City shall assess all such property at its true value as provided by law. Provided, however, in the event the Board of Aldermen determine that the purchaser or subsequent owner of such property is operating, maintaining and using such property in accordance with the approved development plan, then the Board of Aldermen may grant partial tax relief as provided in RSMo 353.150, Paragraph 4 (1949) to the purchaser or subsequent owner of such property. (1960 C., § 29.360; 1994 C., § 11.06.350; Ord. No. 49583, § 19, 1959.)

City Counselor Ops.: 9655

11.06.360 Urban Redevelopment Corporations Law adopted.

The provisions of the "Urban Redevelopment Corporations Law" found at RSMo Ch. 353 (1949), as amended, are hereby accepted.

There is hereby incorporated by reference all of the provisions of the "Urban Redevelopment Corporations Law" found at C RSMo Ch. 353 (1949), as amended. All such provisions shall apply where applicable to any persons or corporations acting under this chapter. (1960 C., § 29.380; 1994 C., § 11.06.360; Ord. No. 49583, § 21(part), 1959.)

City Counselor Ops.: 9655

11.06.370 Applicability.

A. Nothing contained in this chapter shall be construed to apply in any manner whatsoever to "The Housing Authorities Law" found at RSMo 99.010 et seq. as amended, the "Land Clearance for Redevelopment Authority Law" found at RSMo 99.300 et seq., as amended, or the "Planned Industrial Expansion Authority Law" found at 100.300 et seq., as amended.

B. As an alternative to the procedures established in this chapter, if the Land Clearance for Redevelopment Authority of the City of St. Louis ("LCRA") is engaged in the preparation or adoption of a redevelopment or urban renewal plan pursuant to RSMo 99.300 to 99.715 (2000), as amended (the "LCRA Law"), the LCRA may find an area to be a "blighted area" as defined in Section 99.320 of the LCRA Law, and also to be a "blighted area" as defined in RSMo 353.020. In such instances, the LCRA may recommend such plan, and such finding of a "blighted area" under both the LCRA Law and the Urban Redevelopment Corporations Law definitions to the planning agency for comment, and to the Board of Aldermen for approval by ordinance in accordance with procedures set forth in RSMo 99.430. If the Planned Industrial Expansion Authority of the City of St. Louis ("PIEA") is engaged in the preparation or adoption of a development plan pursuant to RSMo 100.300 to 100.620 (2000), as amended (the "PIEA Law"), the PIEA may find an area to be a "blighted area" as defined in RSMo 100.310, and also to be a "blighted area" as defined in RSMo 353.020. In such instances, the PIEA may recommend such plan, and such finding of a "blighted area" under both the PIEA Law and the Urban Redevelopment Corporations Law definitions to the planning agency for comment, and to the Board of Aldermen for approval by ordinance in accordance with procedures set forth in the RSMo 100.400.

C. In accordance with RSMo 353.060, prior to passage of any such ordinance determining the area covered by a development or redevelopment plan to be blighted, and prior to the granting of any rights or powers to any corporation (as defined in this chapter) with respect to such development or redevelopment plan, the Board of Aldermen shall hold a public hearing for the stimulation of comment by those to be affected by such grant, and pursuant to RSMo 353.110.3, shall furnish each political subdivision whose boundaries for ad valorem taxation purposes include any portion of such area a written statement of the impact on ad valorem taxes such tax abatement or exemption will have on such political subdivisions. Written notice of such public hearing mailed by first class U.S. mail, postage prepaid, or hand delivered to all such political subdivisions, and in addition shall be published in a newspaper of general circulation in the community once each week for two consecutive weeks, the last publication to be at least ten (10) days prior to the date set for such hearing. The approving ordinance shall provide for the expiration of development or redevelopment rights in event of failure of a Corporation to acquire ownership of property within the blighted area within the time specified in the ordinance.

D. Following passage of such ordinance, the LCRA may contract with private redevelopers or corporations in accordance with RSMo 99.450 and RSMo 353.060, on such terms and conditions as the ordinance may specify, or the LCRA may require. The PIEA may contract with private redevelopers or corporations in accordance with RSMo 100.410 and RSMo 353.060 on such terms and conditions as the ordinance may specify, or the PIEA may require. Any property within the blighted area thereafter acquired by a corporation and used, operated and maintained by such corporation, or any subsequent transferee, in accordance with an approved development or redevelopment plan, shall be assessed in accordance with RSMo 353.110 and 353.150 and in accordance with the approving ordinance. (1960 C., § 29.390; 1994 C., § 11.06.370; Ord. No. 70262, § 1, 3-22-2016; Ord. No. 51446, § 1, 1962; Ord. No. 49583, § 21(part), 1959.)

City Counselor Ops.: 8774, 9655

Chapter 11.07

PROCEDURES FOR OBSOLETE AREAS

For provisions on redevelopment procedures for blighted areas, see Ch. 11.06.

For provisions on the community development agency, see Ch. 3.48.

Sections:

11.07.010	**Findings.**
11.07.020	**Definition.**
11.07.030	**Procedure for designating area obsolete.**
11.07.040	**Application—Contents.**
11.07.050	**Application—Review.**
11.07.060	**Recommendation of Community Development Commission.**
11.07.070	**Eminent domain.**
11.07.080	**Ordinance to contain findings and declaration.**
11.07.090	**Public hearing.**
11.07.100	**Availability of state law.**
11.07.110	**Declaration—Copy filed with Recorder of Deeds.**

11.07.010 Findings.

It is hereby determined and declared by the Board of Aldermen that in certain portions of the City obsolete areas exist occasioned by defective design or arrangement of buildings, or the existence of buildings, which, by reason of age, obsolescence, or physical deterioration, have impaired the economic value of areas, and retarded private investment thereon, and such areas are characterized by depreciated values, impaired investments, reduced or negligible income and consequent tax delinquencies; that such conditions are conducive to economic and social liabilities; that the existence of such conditions result in progressive deterioration, loss of population, demolition of residential structures, causes a wasteful expenditure of public funds for policing and delivery of services; that it is possible for individual owners to independently undertake to remedy such conditions; such conditions require the employment of capital on an investment basis; that the rehabilitation and reconstruction of such areas needs to be encouraged on a large-scale basis by private property owners; and that such obsolete areas constitute a menace to the health, safety, morals, and welfare of the citizens of the City. Therefore, the necessity for the provisions herein enacted is hereby declared as a matter of legislative determination to be in the public interest. (1994 C., § 11.07.010; Ord. No. 57974, § 1, 1980.)

11.07.020 Definition.

"Obsolete area" means that portion of the City which the Board of Aldermen determines that by reason of age, obsolescence or physical deterioration, substantial private investment by property owners of governmental controls is necessary to combat ill health, continued deterioration, disease, crime and tax delinquency. (1994 C., § 11.07.020; Ord. No. 57974, § 2, 1980.)

11.07.030 Procedure for designating area obsolete.

Any area in the City may be designated as an obsolete district in the following manner:

A. An application shall be submitted to the Director of the Community Development Agency. Such application may be submitted by the following:

1. The Alderman of the ward within which the proposed area is located; or

2. By a petition signed by 51% or more of the property owners, or by 25 property owners, whichever is less, located within the proposed district.

B. The Director of the Community Development Agency, upon receipt of said application shall forthwith, in writing, notify the Mayor and the Clerk of the Board of Aldermen that the director has received such an application. (1994 C., § 11.07.030; Ord. No. 57974, § 3, 1980.)

11.07.040 Application—Contents.

An application shall contain the following:

A. A legal description of the area by metes and bounds, or other definite designation;

B. An inventory of the structures within the proposed area stating the number of structures, the number of single-family dwellings, and the number of multiple-family dwellings;

C. A statement of the general condition of the structures within the area;

D. A general statement of the nature of the improvements, repairs or alterations needed;

E. A statement of the character, type, and quality of construction. (1994 C., § 11.07.040; Ord. No. 57974, § 4, 1980.)

11.07.050 Application—Review.

The Director of the Community Development Agency shall immediately forward the application to the Community Development Commission for study and recommendation. (1994 C., § 11.07.050; Ord. No. 57974, § 5, 1980.)

11.07.060 Recommendation of Community Development Commission.

The recommendation of the Community Development Commission shall be transmitted to the Mayor and the Housing and Urban Development Committee of the Board of Aldermen within 60 days from the date of their receipt of the application:

A. Whether the public purpose as declared in [this] chapter will be effectuated by the creation of the area;

B. Whether the creation of the area is in the public interest;

C. Whether the size of the area is practical. (1994 C., § 11.07.060; Ord. No. 57974, § 6, 1980.)

11.07.070 Eminent domain.

The Board of Aldermen shall not determine that it is in the public interest and serves the public purpose as expressed in this chapter that the power of eminent domain be used. (1994 C., § 11.07.070; Ord. No. 57974, § 7, 1980.)

11.07.080 Ordinance to contain findings and declaration.

Every ordinance approving an obsolete district shall contain a finding and declaration that the area is in the public interest. (1994 C., § 11.07.080; Ord. No. 57974, § 8, 1980.)

11.07.090 Public hearing.

Upon introduction of a bill having as its subject matter an obsolete district into the Board of Aldermen, the committee to which such bill is referred for consideration may hold a public hearing thereon. (1994 C., § 11.07.090; Ord. No. 57974, § 9, 1980.)

11.07.100 Availability of state law.

The provisions of RSMo 137.112 to 137.114 shall be available in an obsolete area created pursuant to this chapter, subject to the procedures set out in Sections 5.26.100 through 5.26.140. (1994 C., § 11.07.100; Ord. No. 57974, § 10, 1980.)

11.07.110 Declaration—Copy filed with Recorder of Deeds.

Upon passage of an obsolete area bill by the Board of Aldermen and approval by the Mayor, the area described within the boundaries contained within the bill shall be declared on obsolete district, and the Clerk of the Board of Aldermen shall forthwith file a copy of same with the Recorder of Deeds and with the Assessor of the City. (1994 C., § 11.07.110; Ord. No. 57974, § 11, 1980.)

Chapter 11.08

RODENT, INSECT AND PEST CONTROL

RSMo:

Missouri Pesticide Use Act, RSMo 281.010 et seq.

Sections:

Part I. Fumigation—Permits and Licenses

11.08.010 Definitions.
11.08.020 Permit—Required.
11.08.030 Permit—Separate for each fumigation.
11.08.040 Permit—Bond.
11.08.050 Permit—Application.
11.08.060 Fumigant operator's license.
11.08.070 Fumigant operator helper—License—Required.
11.08.080 Fumigant operator helper—License—Expiration.
11.08.090 Fumigant operator helper—Supervision.
11.08.110 Board of Examiners of Fumigators—Created—Composition.
11.08.120 Board of Examiners of Fumigators—Rules and regulations.
11.08.130 Board of Examiners of Fumigators—Duty before issuance of certificate for license.
11.08.140 Appeals.
11.08.150 Issuance.
11.08.160 Revocation.

Part II. Fumigation—General Regulations

11.08.180 Powers of employees of Health Division and Fire Prevention Bureau.
11.08.190 Authority of Fire Department.
11.08.200 Interfering with or hindering fumigation.

11.08.210 Humans in buildings being fumigated.
11.08.220 Partial fumigation.
11.08.230 Premises to be sealed.
11.08.240 Warning signs.
11.08.250 Notification of occupants.
11.08.260 Fire department and Police Department to be notified.
11.08.270 Watchmen.
11.08.280 Premises not to be entered until safe.
11.08.290 Doors and windows to be locked.
11.08.300 Premises preparation.
11.08.310 First aid equipment—Safety devices.
11.08.320 Persons required at fumigation.
11.08.330 Handling and disposition of fumigants.
11.08.340 Adding warning substance to fumigant.
11.08.350 Applicability.

Part III. Rat Control

11.08.370 Definitions.
11.08.380 Control required.
11.08.390 Rat control section.
11.08.400 Inspections.
11.08.410 Permitting rat infestation.
11.08.420 Notice to owner or agent.
11.08.430 Failure of owner or agent to rat-stop and eliminate rat-harborages.
11.08.440 Duty to maintain building in rat-stopped condition.
11.08.450 Removal of rat-stoppage.
11.08.460 Interior harborages.
11.08.470 Notification of occupants of interior rat-infestation.
11.08.480 Failure of occupants to free building of rats.
11.08.490 Duty to maintain building in rat-free condition.
11.08.500 Notification of owner, agent or occupants of exterior rat infestation.
11.08.510 Dumping waste.
11.08.520 Accumulation of garbage and rubbish.
11.08.530 Accumulation of salvageable material.
11.08.540 Storage of animal food.
11.08.550 Enforcement.
11.08.560 Penalty for violation of this part.

PART I. FUMIGATION—PERMITS AND LICENSES

11.08.010 Definitions.

For the purposes of Parts I and II, the following words and phrases shall have the meanings ascribed to them in this section:

A. "Fumigant" means and includes any substance which, by itself or in combination with any other substance, emits or liberates a gas, fume or vapor, which gas, fume or vapor when liberated and used for the destruction or control of bacteria, fungi, insects, rodents or similar vermin or pests, is lethal, poisonous, noxious, explosive, dangerous or otherwise harmful to human beings;

B. A "fumigant operator" is any person who personally performs the acts involved in a fumigation;

C. A "fumigant operator helper" is a person who works as a helper or apprentice to a fumigant operator;

D. "Fumigation" means and includes any process or procedure in which a fumigant is employed, and shall include the preparation preceding release of the fumigant, the exposure period, and the elimination or ventilation period up until the time the premises fumigated are declared by the fumigant operator to be ready for reoccupation;

E. A "fumigator" is any person in general control of any fumigation. (1948 C., Ch. 56, § 1; 1960 C., § 525.010; 1994 C., § 11.08.010.)

11.08.020 Permit—Required.

No person shall perform or cause to be performed a fumigation in the City, without first having secured a fumigation permit from the Health Commissioner of the City as provided in this part. (1948 C., Ch. 56, § 2; 1960 C., § 525.020; 1994 C., § 11.08.020.)

11.08.030 Permit—Separate for each fumigation.

An individual fumigation permit shall be required for each separate fumigation in any building or portion thereof which is occupied or intended for occupancy; provided, however, that no individual permit but only an annual fumigation permit shall be required for fumigations in special rooms, vaults or tanks approved as to location, construction and ventilation by the Health Commissioner, or for similar types of fumigations as

determined by the Health Commissioner; provided, also, that this chapter shall not apply to fumigations in greenhouses, mushroom houses, for horticultural fumigations, for fumigations outside of buildings, for the fumigation of grain in bins or elevators, and for fumigations performed by officials of federal, state or municipal agencies. (1948 C., Ch. 56, § 3; 1960 C., §§ 525.030, 525.040; 1994 C., § 11.08.030.)

11.08.040 Permit—Bond.

No fumigation permit shall be issued to any applicant who shall not have furnished the City a liability bond in the amount of ten thousand dollars approved as to form by the City Counselor, and as to surety by the Comptroller of the City, conditioned that the principal shall comply with the provisions of Parts I and II and the regulations adopted as provided in Parts I and II and will indemnify any person damaged or injured by such fumigation in a manner in violation of Parts I and II or the regulations as provided in Parts I and II or in lieu thereof shall have furnished and filed with the Comptroller of the City a policy or certificate of insurance approved as to form by the City Counselor and accepted by the Comptroller of the City, insuring such applicant against any and all loss by reason of damage or injury to health or death that may result to any persons by such fumigation, which policy or certificate of insurance shall guarantee payment of all final judgments recovered against such applicant by reason of any such damage, injuries or death. (1948 C., Ch. 56, § 4; 1960 C., § 525.050; 1994 C., § 11.08.040.)

11.08.050 Permit—Application.

The application for a fumigation permit shall describe the building or portions of a building to be fumigated, shall name the fumigant operator and the fumigant operator helper who will perform the acts of fumigation, and include such other information as shall be deemed necessary by the Health Commissioner. No persons other than those named in the application and in the fumigation permit issued shall perform any of the acts of fumigation. In each case, such fumigant, operators and fumigant operator helpers shall have applied for and been issued licenses as fumigant operators and fumigant operator helpers as provided in Parts I and II. (1948 C., Ch. 56, § 5; 1960 C., § 525.060; 1994 C., § 11.08.050.)

11.08.060 Fumigant operator's license.

No person shall work as a fumigant operator unless he is a holder of a fumigant operator's license issued as provided in this part. Such license shall be renewed annually. (1948 C., Ch. 56, § 6; 1960 C., § 525.070; 1994 C., § 11.08.060.)

11.08.070 Fumigant operator helper—License—Required.

No person shall work and no employer or fumigator shall engage or allow or permit such person to work as a helper or as an apprentice to a fumigant operator unless he is a holder of a fumigant operator helper's license.

Before a helper or an apprentice is engaged, an application must be filed by the employer or fumigator for a fumigant operator helper's license signed by the apprentice and countersigned by the employer or fumigator. (1948 C., Ch. 56, §§ 7, 8; 1960 C., § 525.080; 1994 C., § 11.08.070.)

11.08.080 Fumigant operator helper—License—Expiration.

A fumigant operator helper's license shall expire ninety days after date of issuance unless employment is sooner terminated or the license is otherwise revoked by the Board of Examiners of Fumigators. (1948 C., Ch. 56, § 10; 1960 C., § 525.100; 1994 C., § 11.08.080.)

11.08.090 Fumigant operator helper—Supervision.

No helper or apprentice holding a fumigant operator helper's license shall engage in any part of the work of fumigation except under the personal direction and supervision of a licensed fumigant operator. (1948 C., Ch. 56, § 9; 1960 C., § 525.090; 1994 C., § 11.08.090.)

11.08.110 Board of Examiners of Fumigators—Created—Composition.

There is created a Board of Examiners of Fumigators which shall consist of three members, two of whom shall be appointed by the Mayor and shall serve for a term of four years from the date of their appointment and until their successors are duly appointed and qualify. The qualifications and compensation of these two members shall be determined in accordance with the Charter and ordinances of the City. The third member shall be an employee of the Health Department to be designated by the Health Commissioner. He shall act as Chairman of the Board of Examiners and shall serve without additional compensation. (1948 C., Ch. 56, § 12; 1960 C., § 525.120; 1994 C., § 11.08.110.)

11.08.120 Board of Examiners of Fumigators—Rules and regulations.

The Board of Examiners of Fumigators is hereby authorized to adopt and establish rules and regulations concerning the issuance and revocation of permits and licenses under this part, and to determine whether applicants qualify for licenses and permits under the provisions of this part. (1948 C., Ch. 36, § 13; 1960 C., § 525.130; 1994 C., § 11.08.120.)

11.08.130 Board of Examiners of Fumigators—Duty before issuance of certificate for license.

Before issuing a certificate for a license to a fumigant operator, the Board of Examiners of Fumigators shall satisfy itself that the applicant is competently trained or experienced in the use of fumigants, that he knows the fundamental principles of fumigation procedures and has detailed knowledge concerning the hazards involved, precautionary or safety measures, the use of gas masks, the effects of fumigants upon foods, and other commodities, dosages and exposure periods, ventilation, conditions of safe reoccupancy, methods of first aid and resuscitation, and other details which will ensure safe fumigations. Before being issued such certificate for a fumigant operator's license, the applicant shall have personally engaged in at least twenty-five complete fumigations. (1948 C., Ch. 56, § 14; 1960 C., § 525.140; 1994 C., § 11.08.130.)

11.08.140 Appeals.

Appeals from all decisions of the Board of Examiners of Fumigators may be taken to the Board of Public Service of the City, by filing written notice of appeal within fifteen days after the date of the decision of the Board of Examiners of Fumigators. (1948 C., Ch. 56, § 15; 1960 C., § 525.150; 1994 C., § 11.08.140.)

11.08.150 Issuance.

Licenses and permits shall be issued by the License Collector upon presentation of a certificate issued in accordance with the provisions of this part and signed by the Health Commissioner or his authorized representative. (1948 C., Ch. 56, § 16; 1960 C., § 525.160; 1994 C., § 11.08.150.)

11.08.160 Revocation.

No permit or license which is issued as provided in this part shall be revoked without a hearing before the Board of Examiners of Fumigators, five days' written notice of which hearing shall be served in person or mailed to the last known address of the holder of the permit or license. (1948 C., Ch. 56, § 17; 1960 C., § 525.170; 1994 C., § 11.08.160.)

PART II. FUMIGATION—GENERAL REGULATIONS

11.08.180 Powers of employees of Health Division and Fire Prevention Bureau.

Duly authorized employees of the Health Division and of the Fire Prevention Bureau shall have access to all buildings to be fumigated and may summarily stop, or require the ventilation of, any fumigation which is being conducted in violation of the ordinances of the City or rules or regulations adopted under the provisions of this part, or in a manner dangerous to human life. (1948 C., Ch. 56, § 18; 1960 C., § 526.010; 1994 C., § 11.08.180.)

McQuillin:

24.238 Fumigation of buildings

11.08.190 Authority of Fire Department.

If a fire occurs in the immediate vicinity of the fumigation, the Chief of the Fire Division, or his duly authorized representative, may, at his discretion, cause the building under fumigation to be immediately ventilated by the fumigant operator. (1948 C., Ch. 56, § 19; 1960 C., § 526.020; 1994 C., § 11.08.190.)

11.08.200 Interfering with or hindering fumigation.

No person, except as authorized herein, shall interfere with or hinder a licensed fumigant operator or license fumigant operator's helper in complying with the provisions of this part. No person shall break through barricades or refuse to heed warning signs or guards which may be required by the provisions of this part. (1948 C., Ch. 56, § 20; 1960 C., § 526.030; 1994 C., § 11.08.200.)

11.08.210 Humans in buildings being fumigated.

No building or enclosed space shall, during the period of fumigation, be occupied by human beings. It shall be the duty of the fumigant operator to make, or cause to be made, a careful examination of all parts of such buildings, or enclosed space in order to verify that no human beings have remained therein, and that all necessary precautions have been undertaken to safeguard the lives and health of all persons occupying buildings adjoining that in which the fumigation is to

be performed. (1948 C., Ch. 56, § 21; 1960 C., § 526.040; 1994 C., § 11.08.210.)

11.08.220 Partial fumigation.

No partial fumigation of any building shall be permitted unless the whole structure is vacated; provided, that this shall not apply under extraordinary circumstances as determined by the representative of the Health Commissioner and where the complete fumigation is carried on under the direct supervision of such representative. (1948 C., Ch. 56, § 22; 1960 C., § 526.050; 1994 C., § 11.08.220.)

McQuillin:

24.238 Fumigation of buildings

11.08.230 Premises to be sealed.

The premises to be fumigated shall be sealed in such a manner as to confine the fumigant to the space intended to be fumigated. (1948 C., Ch. 56, § 23; 1960 C., § 526.060; 1994 C., § 11.08.230.)

11.08.240 Warning signs.

Prior to the fumigation, warning signs shall be posted on all doors or entrances to the premises to be fumigated. The size, design, night illumination and wording of such warning signs shall be approved by the Health Commissioner and only such approved signs shall be used. (1948 C., Ch. 56, § 24; 1960 C., § 526.070; 1994 C., § 11.08.240.)

11.08.250 Notification of occupants.

Tenants and occupants of a building to be fumigated shall be notified in writing at least five hours in advance of a fumigation. Such notice may be left with a responsible person in each dwelling or occupied building unit or by attaching such notice in a conspicuous manner to the entrance door to such occupied unit. (1948 C., Ch. 56, § 25; 1960 C., § 526.080; 1994 C., § 11.08.250.)

11.08.260 Fire department and Police Department to be notified.

The Fire Department, through the alarm office, and the Police Department shall be notified by the health division when a permit for fumigation is issued. (1948 C., Ch. 56, § 26; 1960 C., § 526.090; 1994 C., § 11.08.260.)

11.08.270 Watchmen.

During the period fumigation is in process, a capable, alert watchman shall remain on duty at the entrance to the building or enclosed space fumigated and until the fumigation is completed and the premises are properly ventilated and again safe for human occupancy. (1948 C., Ch. 56, § 27; 1960 C., § 526.100; 1994 C., § 11.08.270.)

11.08.280 Premises not to be entered until safe.

The fumigant operator shall not permit or allow any person to enter the premises after fumigation until he has declared the premises safe for human occupancy as herein provided. Such declaration shall not be made until the fumigant operator:

A. Shall have inspected without gas mask or other means of protection every part of the premises; and

B. Shall have properly ventilated the premises by natural or artificial ventilation, by opening all enclosed spaces, by beating and shaking of absorbing materials, by reheating of premises to at least sixty degrees Fahrenheit and by other necessary ventilation methods.

In all cases, the ventilation or airing period shall not be less than six hours. The fumigant operator shall declare the premises ready for occupancy in accordance with the previous requirements in writing and shall post such signed declaration or certification conspicuously near the entrance to the fumigated premises. (1948 C., Ch. 56, § 28; 1960 C., § 526.110; 1994 C., § 11.08.280.)

11.08.290 Doors and windows to be locked.

Prior to fumigation, all doors, windows and other wall openings, except one exit door which might be used to gain entrance to the enclosed space to be fumigated, shall be securely locked or fastened. Immediately upon releasing or generating the fumigant, the remaining door or exit shall be locked and sealed. (1948 C., Ch. 56, § 29; 1960 C., § 526.120; 1994 C., § 11.08.290.)

11.08.300 Premises preparation.

Greasy and damp foodstuffs, including milk, butter, green vegetables, eggs, open liquid containers, plants, fish, birds and domestic animals shall be removed, and the main electrical switch opened prior to fumigation. All fires shall be extinguished prior to fumigation if an inflammable fumigant is used. (1948 C., Ch. 56, § 30; 1960 C., § 526.130; 1994 C., § 11.08.300.)

11.08.310 First aid equipment—Safety devices.

There shall be available at the site of fumigation such first aid equipment, safety devices and protective equipment as shall be required by the Health Commissioner. Such equipment shall meet the requirements of

the Health Commissioner as to amount, design, condition, replacement parts and efficiency. (1948 C., Ch. 56, § 31; 1960 C., § 526.140; 1994 C., § 11.08.310.)

11.08.320 Persons required at fumigation.

There shall be two or more persons at every fumigation, one of which shall be a licensed fumigant operator. These persons must be present at the time of releasing the fumigant and during the initial ventilation. (1948 C., Ch. 56, § 32; 1960 C., § 526.150; 1994 C., § 11.08.320.)

11.08.330 Handling and disposition of fumigants.

Fumigants shall be handled and disposed of in such a manner as to avoid safety hazards and to prevent damage to structures or other property. (1948 C., Ch. 56, § 33; 1960 C., § 526.160; 1994 C., § 11.08.330.)

11.08.340 Adding warning substance to fumigant.

Whenever it shall be determined by the Health Commissioner that, as an additional precaution, there should be mixed with the fumigant some warning substance, having characteristics of smell or otherwise which will indicate the presence of such fumigant without destroying its effectiveness, such warning substance shall be added to the fumigant. (1948 C., Ch. 56, § 34; 1960 C., § 526.170; 1994 C., § 11.08.340.)

11.08.350 Applicability.

The provisions of Sections 11.08.220, 11.08.250—11.08.300, 11.08.320 and 11.08.340 shall not apply to fumigants for which only annual permits are required by Section 11.08.030. (1948 C., Ch. 56, § 35; 1960 C., § 526.180; 1994 C., § 11.08.350.)

PART III. RAT CONTROL

11.08.370 Definitions.

For the purposes of this part, the following definitions shall apply:

A. "Agent" means any individual, firm, partnership, or corporation which acts for the owner in the collection of rents, the making of repairs, the commencement or termination of tenancies, or as janitor or other person in charge of any building, premises, or vacant lot;

B. "Building" means any structure whether public or private that is adapted or intended for occupancy for dwelling purposes, for the transaction of business, for the rendering of professional service, for amusement, for the display, sale or storage of goods, wares or merchandise, or for the performance of work or labor, including hotels, rooming houses, office buildings, public buildings, stores, theatres, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories and all other houses, sheds, barns and other structures;

C. "Health officer" means the Health Commissioner of the City or his authorized representative;

D. "Occupant" means the individual, firm, partnership, or corporation that has the use of, controls or occupies any building, or any portion thereof, whether owner or tenant. In the case of a vacant building, or any vacant portion of a building, or in the case of a building having five or more families with common rights to a cellar or basement, the owner or agent shall have the responsibilities of an occupant of a building;

E. "Owner" means any person, who alone, jointly or severally with others shall be in actual possession, have charge, care or control of, any building or premises, or vacant lot within the City as owner, whether individual, firm, partnership or corporation or as trustee or guardian of the estate or person of the title holder, and shall include the owner of record as reflected by the City Recorder's Office;

F. "Rat-harborage" means any condition which may provide shelter or protection for rats, thus favoring their multiplication or existence;

G. "Rat-stoppage" means a form of rat-proofing to prevent the ingress of rats into buildings from the exterior or from one building to another. It consists essentially of the closing of all openings in the exterior walls, ground or first floors, basements, roofs and foundations, that may be reached by rats from the ground by reaching, climbing, jumping, or burrowing, with material or equipment impervious to rat-gnawing and in accordance with specifications promulgated by the Health Commissioner. (1948 C., Ch. 56, § 37; 1960 C., § 527.010; 1994 C., § 11.08.370; Ord. No. 50560, § 1, 1961; Ord. No. 48292, § 1(37), 1957.)

Charter:

Art I § 1(25) Nuisances

11.08.380 Control required.

All buildings and structures shall be rat-stopped, freed of rats and maintained in a rat-stopped and rat-free condition. (1960 C., § 527.020; 1994 C., § 11.08.380; Ord. No. 49562, § 1(38a), 1959; Ord. No. 48292, § 1(38a), 1957: 1948 Ch. 56, § 38(a).)

11.08.390 Rat control section.

There is hereby established a section in the Division of Health of the Department of Health and Hospitals to be known as the rat control section. This section shall be headed by a competent person as may be prescribed by the Department of Personnel. (1960 C., § 527.030; 1994 C., § 11.08.390; Ord. No. 49562, § 1(38b), 1959; Ord. No. 48292, § 1(38b), 1957: 1948 C., Ch. 56, § 38(b).)

11.08.400 Inspections.

The health officer is hereby empowered to make such inspections of the interior and exterior of any building, structure, or of any premises or vacant lots as in his opinion may be necessary to determine full compliance with this part, and the health officer shall make periodic inspections at intervals of not more than six months of all rat-stopped business buildings, apartment houses, and tenement houses to determine evidence of rat infestation and the existence of new breaks or leaks in the rat stoppage, and when any evidence is found indicating the presence of rats or openings through which rats may again enter such buildings, the health officer shall serve the owner, occupant, or agent with written notice to abate the conditions found. (1948 C. Ch 56, § 38(d); 1960 C., § 527.050; 1994 C., § 11.08.400; Ord. No. 49562, § 1(38d), 1959; Ord. No. 48292, § 1(38d), 1957.)

11.08.410 Permitting rat infestation.

No owner, agent or occupant shall permit or allow any building to be infested with rats or shall permit or allow any condition to exist in or around such building or on any premises or any vacant lot which may be conducive to rat infestation. (1948 C., Ch. 56, § 39:1960 C., § 527.060; 1994 C., § 11.08.410; Ord. No. 48292, § 1(39), 1957.)

11.08.420 Notice to owner or agent.

Upon the receipt of written notice from the health officer, the owner or agent of any building specified therein shall take immediate measures for the rat-stoppage of such building and for the elimination of rat-harborages within such building and on the premises, and unless said work has been completed in the time specified in the written notice or any written extension thereof that may be granted by the health officer, the owner or agent shall be deemed guilty of a misdemeanor. (1948 C., Ch. 56, § 40; 1960 C., § 527.070; 1994 C., § 11.08.420; Ord. No. 48292, § 1(40), 1957.)

11.08.430 Failure of owner or agent to rat-stop and eliminate rat-harborages.

If the owner or agent fails to comply with such written notice or extension the health officer is authorized and directed after receiving competitive bids, to enter into a contract with any person, firm, or corporation for the rat-stoppage of such building, and for the elimination of rat-harborages within such building or on the premises. The cost of such contract shall be paid from the funds provided in Section 55 of Ordinance 48292, and the health officer shall submit bills for the cost thereof to the owner or agent of said building. If said bills are not paid, the health officer shall certify the amount due to the Comptroller and said charge shall be a lien against the property where the work was done. The City Counselor is empowered to take such action as may be necessary for their collection. (1948 C., Ch. 56, § 41; 1960 C., § 527.080; 1994 C., § 11.08.430; Ord. No. 48292, § 1(41), 1957.)

11.08.440 Duty to maintain building in rat-stopped condition.

The owner or agent of any rat-stopped building shall maintain it in a rat-stopped condition and repair all breaks or leaks that may occur in the rat-stoppage. (1948 C., Ch. 56, § 42; 1960 C., § 527.090; 1994 C., § 11.08.440; Ord. No. 48292, § 1(42), 1957.)

11.08.450 Removal of rat-stoppage.

It is unlawful for the occupant, owner, contractor, public utility company, plumber, or any other person to remove the rat-stoppage from any building for any purpose and fail to restore the same in a satisfactory condition or to make any new openings that are not closed or sealed against the entrance of rats. (1948 C., Ch. 56, § 43; 1960 C., § 527.100; 1994 C., § 11.08.450; Ord. No. 48292, § 1(43), 1957.)

11.08.460 Interior harborages.

Whenever conditions inside or under any building provide such extensive harborage for rats that the health officer deems it necessary to eliminate such harborage, he may require the owner or agent to install concrete floors, or to replace wooden first or ground floors, or require the owner, agent, or occupant to correct such other interior rat-harborage as may be necessary to facilitate the eradication of rats in a reasonable time. (1948 C., Ch. 56, § 44; 1960 C., § 527.110; 1994 C., § 11.08.460; Ord. No. 48292, § 1(44), 1957.)

11.08.470 Notification of occupants of interior rat-infestation.

Whenever the health officer notifies in writing the occupant or occupants of any building that there is evidence of rat-infestation of the building, such occupant or occupants shall take immediate and effective measures for freeing the premises so occupied of all rats.

The failure of any occupant to take effective measures for freeing his portion of the building or premises of rats after receiving the notice described in this section shall constitute a misdemeanor. (1948 C., Ch. 56, § 45; 1960 C., § 527.120; 1994 C., § 11.08.470; Ord. No. 48292, § 1(45), 1957.)

11.08.480 Failure of occupants to free building of rats.

Unless effective measures for freeing the building of rats are instituted by the occupant or occupants within the time specified by the health officer and unless continually maintained in a satisfactory manner until the building is free of rats, the health officer is hereby authorized, and directed, after receiving competitive bids, to enter into a contract with any person, firm, or corporation for eradication of rats in such building. The cost of such contract shall be paid from the funds provided in Section 55 of Ordinance 48292, and the health officer shall submit bills for the costs thereof to the occupant or occupants of the building. If the same are not paid, the health officer shall certify the amount due from occupant or occupants to the Comptroller and the City Counselor shall take such action as may be necessary to collect the same. (1948 C., Ch. 56, § 46; 1960 C., § 527.130; 1994 C., § 11.08.48; Ord. No. 48292, § 1(46), 1957.)

11.08.490 Duty to maintain building in rat-free condition.

The occupant or occupants of a building shall maintain the building and premises in a rat-free condition. (1948 C., Ch. 56, § 47; 1960 C., § 527.140; 1994 C., § 11.08.490; Ord. No. 48292, § 1(47), 1957.)

11.08.500 Notification of owner, agent or occupants of exterior rat infestation.

Whenever the health officer notifies in writing the owner, agent, or occupant or occupants of any premises that there is evidence of rat infestation on the outside of a building or on the premises or on a vacant lot, such owner, agent, occupant or occupants shall take immediate and effective measures for the elimination of rats from such premises or vacant lot.

The failure of any owner, agent, or occupant to take effective measures for the elimination of rat infestation on the premises or vacant lot after receiving the notice described in this section shall constitute a misdemeanor. (1948 C., Ch. 56, § 48; 1960 C., § 527.150; 1994 C., § 11.08.500; Ord. No. 48292, § 1(48), 1957.)

11.08.510 Dumping waste.

It is unlawful for a person, firm, partnership, or corporation to dump or place on any premises, land, or waterway any dead animals or any waste, vegetable or animal matter of any kind. (1948 C., Ch. 56, § 49; 1960 C., § 527.160; 1994 C., § 11.08.510; Ord. No. 48292, § 1(49), 1957.)

11.08.520 Accumulation of garbage and rubbish.

It shall be unlawful for any person, firm, partnership, or corporation to place, leave, dump or permit to accumulate any garbage or rubbish in any building or premises, or on any vacant lot, so that the same may afford food or harborage for rats. (1948 C., Ch. 56, § 50; 1960 C., § 527.170; 1994 C., § 11.08.520; Ord. No. 48292, § 1(50), 1957.)

11.08.530 Accumulation of salvageable material.

It is unlawful for any person, firm, partnership or corporation, to accumulate or to permit the accumulation on any premises or on any open lot of any lumber, boxes, barrels, bricks, stones, or similar materials that may be permitted to remain thereon and which may afford harborage for rats, unless the same shall be evenly piled or stacked either on open racks that are elevated not less than twelve inches above the ground, or on a paved surface impervious to rats. (1948 C., Ch. 56, § 51; 1960 C., § 527.180; 1994 C., § 11.08.530; Ord. No. 48292, § 1(51), 1957.)

11.08.540 Storage of animal food.

All food and feed kept within the City for feeding animals shall be kept and stored in rat free and rat proof containers, compartments, or rooms unless kept in a rat-stopped building. (1948 C., Ch. 56, § 52; 1960 C., § 527.190; 1994 C., § 11.08.540; Ord. No. 48292, § 1(52), 1957.)

11.08.550 Enforcement.

It shall be the duty of the health officer to enforce the provisions of this part and to supervise the enforce-

ment thereof by the rat control section. (1948 C., Ch. 56, § 38(c); 1960 C., § 527.040; 1994 C., § 11.08.550; Ord. No. 49562, § 1(38c), 1959; Ord. No. 48292, § 1(38c), 1957.)

11.08.560 Penalty for violation of this part.

Any person, firm, partnership, or corporation who shall violate any provision or provisions of this part shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than five dollars nor more than five hundred dollars and each day's violation shall constitute a separate offense. (1948 C., Ch. 56, § 56; 1994 C., § 11.08.560; Ord. No. 48292, § 1(56), 1957.)

Chapter 11.10

PUBLIC DRINKING FOUNTAINS

Sections:

11.10.010 Compliance.
11.10.020 Application.
11.10.030 Location.
11.10.040 Construction.
11.10.050 Supplementary fountain.
11.10.060 Drainage.
11.10.070 Charges.
11.10.080 Acceptance to be filed.
11.10.090 Conditions for discontinuance.
11.10.100 Exceptions.
11.10.110 Humane society may establish fountains.
11.10.120 Open air assembly unit.

11.10.010 Compliance.

No public drinking fountain shall be hereafter erected or placed upon any street or other public place in the City except upon the authority and under the terms and conditions prescribed. (1948 C., Ch. 55, § 59(part); 1960 C., § 497.010; 1994 C., § 11.10.010.)

11.10.020 Application.

The owner of any lot of ground abutting upon any such street or other public place, desiring to erect or place a public drinking fountain in front of his premises and on such street or other public place, shall submit to the Board of Public Service a written application for authority so to do. Application shall be accompanied by full and detailed plans and specifications, showing the proposed location and the form, character and dimensions of such fountain. The Board of Public Service, if it approve such plans and specifications, may, in its discretion, grant to such owner a permit for the erection of a public drinking fountain in conformity therewith. (1948 C., Ch. 55, § 59(a); 1960 C., § 497.020; 1994 C., § 11.10.020.)

11.10.030 Location.

No public drinking fountain shall be erected within three hundred yards of any public drinking fountain now authorized, or which may hereafter be authorized. (1948 C., Ch. 55, § 59(b); 1960 C., § 497.030; 1994 C., § 11.10.030.)

11.10.040 Construction.

Every public drinking fountain so authorized and erected shall be constructed and equipped with a separate bowl or basin for the convenient accommodation and supply of men and beast, respectively, with drinking water. It shall at all times have attached thereto and in effective operation an automatic valve or shutoff satisfactory to the Water Commissioner of the City and subject to his approval. It shall be constructed and attached and shall so operate that when the bowl or basin intended for the use of beasts is full, the supply of water to such basin shall be automatically shut off, and water shall not again flow into such bowl or basin until a portion of the water therein has been withdrawn. (1948 C., Ch. 55, § 59(c); 1960 C., § 497.040; 1994 C., § 11.10.040.)

11.10.050 Supplementary fountain.

Every such fountain authorized and erected shall be constructed and equipped with a supplementary fountain and sanitary drinking device for the use of man. The size, form and character of this device shall be subject to approval by the Board of Public Service, be equipped and shall at all times so operate that the waste water from the supplementary fountain for the public shall flow into the bowl or basin provided for the use of beasts. (1948 C., Ch. 55, § 59(d); 1960 C., § 497.050; 1994 C., § 11.10.050.)

11.10.060 Drainage.

The waste water from the bowl or basin provided for beasts shall be so constructed, equipped, placed and connected as to effectively drain into a sewer; provided, that the Board of Public Service may, in its discretion, permit such waste water to be drained into the gutter if the street thereat is an improved street. (1948 C., Ch. 55, § 59(e); 1960 C., § 497.060; 1994 C., § 11.10.060.)

11.10.070 Charges.

The Water Commissioner shall allow water to be furnished to every such fountain authorized without any charge therefor. (1948 C., Ch. 55, § 59(f); 1960 C., § 497.070; 1994 C., § 11.10.070.)

11.10.080 Acceptance to be filed.

Before beginning the erection of any such public drinking fountain authorized, the person authorized to erect such fountain shall first file with the City Register an acceptance, in writing, of all the terms and conditions of this chapter in a form to be approved by the City Counselor. This acceptance shall contain an agreement on the part of owner that he will erect, equip and place in effective operation such fountain within thirty days from the date whereon the erection of such fountain is authorized by the Board of Public Service; that he will keep and maintain the fountain and its equipment at all times in good condition and repair and in effective operation; that he will maintain and operate the fountain to the satisfaction of the Water Commissioner; that he will at any time, upon notice from the Water Commissioner, make any repairs in or upon such fountain, its equipment, attachments or connections, which may be required by the Water Commissioner; that on his failure so to do, or his failure effectively so to operate the fountain, he will on five days' notice from the Water Commissioner remove the fountain at his own cost and expense restore the street or public place where such fountain may have been erected to a condition good and safe and uniform with the surrounding portions of the street or public place and to the satisfaction of the Street Commissioner; that upon his failure to comply with such notice and to do such work effectively and satisfactorily, such fountain may be removed and all such work of restoration may be made by the Street Commissioner, and that the owner will thereupon pay to the City all costs and expenses thereof, to be recovered of him by the City by suit in any court of competent jurisdiction; provided, that the provisions of this chapter relating to a supplementary fountain for the use of the public shall not apply to such public fountains as may be authorized to be erected on streets or other public places which are so located that they cannot be conveniently reached and used by persons standing on the sidewalk. (1948 C., Ch. 55, § 59(g); 1960 C., § 497.080; 1994 C., § 11.10.080.)

11.10.090 Conditions for discontinuance.

Any person maintaining a public drinking fountain, or who may hereafter erect any such as herein provided for, may discontinue such fountain and remove the same at his own cost and expense from the streets and public places of the City, on notice to the Water Commissioner of the City, and by complying with the requirements of the Water Commissioner in reference thereto, and shall then, in addition to all other requirements now or hereafter provided by law, restore, at his own cost and expense, the street or public place to as good condition as it was before the erection of the public drinking fountain, to the satisfaction of the Street Commissioner and failing to do so, the street shall be restored by the Street Commissioner and the cost and expense of so doing shall be recovered against the person maintaining such fountain by the City in any court of competent jurisdiction. The same procedure shall be had in all cases where the person erecting or maintaining such public drinking fountain fails or refuses to comply with the provisions of this chapter or with the provisions of any ordinance now existing or that may hereafter be adopted relating to public drinking fountains. (1948 C., Ch. 55, § 60; 1960 C., § 497.090; 1994 C., § 11.10.090.)

11.10.100 Exceptions.

The provisions of this chapter shall not apply to any public drinking fountain erected pursuant to the provisions of the following ordinances: Ords. 11752, 11874, 13666, 14079, 16104, 16862, 17222, 17913, 18082, 18161. (1948 C., Ch. 55, § 61; 1960 C., § 497.100; 1994 C., § 11.10.100.)

11.10.110 Humane society may establish fountains.

The humane society of Missouri is authorized to erect public drinking fountains in the streets of the City at such points and upon such plans as shall be approved by the Board of Public Service. These fountains, when completed and connected with the waterworks system, shall thereafter be supplied with water by the City; provided, however, that these fountains shall not exceed ten in number. (1948 C., Ch. 55, § 62; 1960 C., § 497.110; 1994 C., § 11.10.110.)

11.10.120 Open air assembly unit.

After January 23, 1950 every structure used as a permanent open air assembly unit to which an admission fee is charged, shall be provided with drinking fountains in the ratio of one fountain for every one thousand five hundred stationary seats or the major

fraction thereof. The drinking fountains shall be located in easily accessible places at convenient locations within said units.

Any person, firm or corporation violating the provisions of this section shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined the sum of not less than five dollars nor more than one hundred dollars. (1960 C., § 497.120; 1994 C., § 11.10.120; Ord. No. 44752, §§ 1, 2, 1948.)

Chapter 11.12

ODORIZING GAS

Sections:

11.12.010 Required.

11.12.010 Required.

All persons, firms or corporations engaged in the business of handling, storing, selling or distributing natural and liquefied petroleum gases, including butane and other odorless gases for public or private use, or supplying such gases by pipe lines or other means for use in the City, shall odorize such gases by the use of a malodorant agent of such character as to indicate by a distinctive odor the presence of gas. Such malodorant agent shall be nontoxic and noncorrosive and not harmful to leather or other types of diaphragms in gas equipment. (1960 C., § 500.010; 1994 C., § 11.12.010; Ord. No. 45007, § 1, 1949.)

Chapter 11.14

TRANSPORTATION OF CERTAIN SUBSTANCES ON STREETS

Sections:

11.14.010 Permit—Required.
11.14.020 Permit—Application.
11.14.030 Bond.
11.14.040 Notice of route—Filing.
11.14.050 Notice of route—Required.

11.14.010 Permit—Required.

No person, firm, or corporation shall transport or cause to be transported in any commercial vehicle any unpackaged earth, dirt, clay, mud or other similar substance on the public streets without first having obtained a permit from the Board of Public Service. (1994 C., § 11.14.010; Ord. No. 55679, § 1, 1970.)

11.14.020 Permit—Application.

Any person, firm, or corporation intending to transport or cause to be transported any unpackaged earth, dirt, clay, mud or other similar substance on the public streets shall file an application with the Board of Public Service accompanied by a fee of five dollars. Said application shall set forth:

A. The name and address of the person, firm, or corporation;

B. The name and address to whom correspondence in relation to the application should be addressed;

C. The number and type of commercial vehicles to be used in transporting;

D. The number of days the transporting activity is to take place;

E. The estimated quantity of substances to be transported;

F. Other information the Board of Public Service may require. (1994 C., § 11.14.020; Ord. No. 55679, § 2, 1970.)

11.14.030 Bond.

The Board of Public Service may grant a permit to transport or cause to be transported in a commercial vehicle unpackaged earth, dirt, clay, mud, or other similar substance on the public streets subject to such limitations and conditions as the board deems appropriate in order to protect the public streets from the deposit of such substances and for the safety of the public. In addition, the board may, either before or after the issuance of such permit, require the deposit of a bond or cash sufficient to cover the cost of removing any substance from the street caused by the activities of the permittee hereunder and any damage which may be sustained to persons or to private or to public property. Failure to provide such bond shall be cause for refusal to issue the permit or for revocation of the permit. (1994 C., § 11.14.030; Ord. No. 55679, § 3, 1970.)

11.14.040 Notice of route—Filing.

Any permittee before transporting under this permit shall file a notice of the intent to transport setting forth the routes intended to be used with the Director of Streets. Such notice shall be filed at least three days prior to commencement of the transportation contemplated in such notice. Such notice shall be filed whenever any route change is made or the origin or destination of the substance is made. If said route or routes are not used for a period of thirty days or more, then a new

notice for such routes shall be filed with the Director of Streets. (1994 C., § 11.14.040; Ord. No. 55679, § 4, 1970.)

11.14.050 Notice of route—Required.

No permittee shall transport or cause to be transported in a commercial vehicle any unpackaged earth, dirt, clay, mud or other similar substance on the public streets without first having filed the notice described in Section 11.14.040 with the Director of Streets. (1994 C., § 11.14.050; Ord. No. 55679, § 5, 1970.)

Chapter 11.15

TRANSPORTATION OF RADIOACTIVE MATERIALS

Sections:

11.15.010 Definitions.

11.15.020 Certificate of emergency transportation—Fee.

11.15.030 Certificate of emergency transportation—Application.

11.15.040 Certificate of emergency transportation—Approval of application.

11.15.050 Certificate of emergency transportation—Specifications.

11.15.010 Definitions.

As used in this chapter, the term:

A. "Carrier of carriers" includes any vehicle used by any private, contract or common carrier as defined by the Interstate Commerce Act, as amended.

B. "Curie" is an expression of quantity of radiation; a curie is the quantity of radioactive material which decays such that 37 billion atoms disintegrate per second.

C. "Large quantity radioactive materials" are defined in 10 CFR 71, Section 71.4(f).

D. "Person" may extend and be applied to bodies politic and corporate, and to partnerships and other unincorporated associations.

E. "Radioactive material" means any material or combination of materials which spontaneously emit ionizing radiation. Materials in which the estimated specific activity is not greater than 0.002 microcuries per gram of material and in which the radioactivity is essentially uniformly distributed, are not considered radioactive matter. Materials for medicinal use are not considered radioactive materials except when packaged in large quantity as defined in Subsection C of this section. (1994 C., § 11.15.010; Ord. No. 57943, § 1, 1979.)

11.15.020 Certificate of emergency transportation—Fee.

No carrier shall transport in the City any of the radioactive materials listed in Section 11.15.030 without first having obtained a certificate of emergency transportation for each individual transportation. There shall be a fee of $25.00 to cover the cost of processing said application. (1994 C., § 11.15.020; Ord. No. 57943, § 2, 1970.)

11.15.030 Certificate of emergency transportation—Application.

A. Any carrier intending to transport any radioactive materials listed below in the City shall make an application for a certificate of emergency transportation with the secretary of the Board of Public Service:

1. Plutonium in any quantity and form exceeding two grams or 20 curies, whichever is less;

2. Uranium enriched in the isotope U-235 exceeding 25 percent of the total uranium content in quantities where the U-235 content exceeds one kilogram;

3. Any of the actinides (i.e., elements with atomic number 89 or greater) the activity of which exceeds 20 curies;

4. Spent reactor fuel elements or mixed fission products associated with spent fuel elements the activity of which exceeds 20 curies;

5. Any quantity of radioactive material specified as "Large Quantity" by the Nuclear Regulatory Commission in 10 CRF 71, "Packaging or Radioactive Material for Transport"; and/or

6. Uranium oxide (yellow cake) in any quantity.

B. The procedures by which and from whom certificates may be obtained shall be determined by the Board of Public Service within 90 days after December 7, 1979, keeping in mind that the purpose of this chapter is to prevent the possibility of an accidental leakage or emission of these extra hazardous materials. (1994 C., § 11.15.030; Ord. No. 57943, § 3, 1979.)

11.15.040 Certificate of emergency transportation—Approval of application.

The Board of Public Service shall use the expertise of the department heads which comprise its membership, and the employees of such departments, and con-

sult with the Police Department officials before approving an application for a certificate of emergency transportation. (1994 C., § 11.15.040; Ord. No. 57943, § 4, 1979.)

11.15.050 Certificate of emergency transportation—Specifications.

The certificate of emergency transportation shall, at a minimum, designate the time interval during which such transportation is permitted; the specific route which must be used; and any other safety precautions which must be taken before, during and after such transportation. (1994 C., § 11.15.050; Ord. No. 57943, § 5, 1979.)

Chapter 11.16

PRIVIES

Sections:

11.16.010 Required.
11.16.020 Maintenance of leaking, filthy or defective privies.
11.16.030 Tubs to be emptied daily.
11.16.040 Sewer connection.
11.16.050 Construction of privy vaults not connected with sewers.
11.16.060 Defective water closets.
11.16.070 Cleaning.
11.16.080 Enforcement.
11.16.090 Water closet requirements.

11.16.010 Required.

Each occupied building and each building intended for occupancy within the City shall be furnished with suitable and lawful privy vaults or water closets. (1948 C., Ch. 53, § 1; 1960 C., § 502.010; 1994 C., § 11.16.010.) McQuillin: 24.263, 24.264 Water closets, cesspools and privy vaults

11.16.020 Maintenance of leaking, filthy or defective privies.

Any owner, lessee, tenant or agent of any building or lot of ground in the City who shall maintain or allow to exist about or on such building or lot of ground any privy, privy vault, commode, cesspool or water closet which shall be found in an overflowing, leaking, full, filthy, stinking, insecure, defective or unlawful condition shall be deemed guilty of a misdemeanor. (1948 C., Ch. 53, § 2; 1960 C., § 502.020; 1994 C., § 11.16.020.)

11.16.030 Tubs to be emptied daily.

The owner or occupant of any premises where tubs or other vessels are used in a privy shall not permit such tubs or other vessels to remain more than one day without being emptied. (1948 C., Ch. 53, § 3; 1960 C., § 502.030; 1994 C., § 11.16.030.)

11.16.040 Sewer connection.

Every water closet or privy constructed and used in any dwelling house or building not connected with some public, district, joint-district or private sewer adjoining the ground on which the building is erected and properly connected with the sewer system of the City shall be deemed a nuisance, except as provided in Section 11.16.050. (1948 C., Ch. 53, § 4; 1960 C., § 502.040; 1994 C., § 11.16.040.)

11.16.050 Construction of privy vaults not connected with sewers.

On all premises not so situated as to be accessible to the sewerage system of the City, the privy vaults shall be constructed as follows:

The vaults shall be sunk under the ground not less than six nor more than eight feet, and shall be walled up with brick or stone, laid in hydraulic cement mortar, with bottom of same material, and shall be so constructed that the outside wall shall be at least two feet distant from the line of any adjoining lot, street or alley and at least fifty feet from any residence. The walls shall be carried one foot above the surface of the ground and shall be built to exclude all water from the surface, from the roof of any building and from the City waterworks. Whenever the contents of such privy vaults reach to within three feet of the top of the wall, they shall be emptied and their contents removed, and it shall be unlawful to build or maintain any privy vault situated as described in this section otherwise than as herein provided. (1948 C., Ch. 53, § 5; 1960 C., § 502.050; 1994 C., § 11.16.050.)

Cases:

Part of city ordinances requiring each dwelling unit to have a bath connected to hot and cold water held unconstitutional as applied. *City of St. Louis v. Brune,* 515 S.W. 2d 471 (1974).

11.16.060 Defective water closets.

Whenever the Health Commissioner is of the opinion that any water closet is not properly connected with the sewer system of the City, or when, in his opinion, the condition of any water closet is such as to be dangerous to the health of the citizens, he shall order

the owner, lessee or agent of the property on which is located such water closet to replace, repair or properly connect such closet with the sewer system of the City in accordance with this Code and any ordinances. Any owner, lessee or agent receiving such order and failing to comply with the same shall be deemed guilty of a misdemeanor. All orders to owners, lessees or agents to connect, replace or repair water closets under the provisions of this section shall be served by the City Marshal in the same manner as writs of summons are required to be served in civil cases. (1948 C., Ch. 53, § 6; 1960 C., § 502.060; 1994 C., § 11.16.060.)

11.16.070 Cleaning.

Privy vaults within the City shall be emptied and thoroughly cleaned by licensed vault cleaners only, upon a permit obtained from the Board of Public Service. No privy shall be emptied at any other time than between the hours of nine o'clock p.m. and four o'clock a.m. unless by special permission or order of the Health Commissioner. The cleaning of all vaults or privies shall be done in such manner and time as is or may be prescribed by this Code or any ordinance and without creating a nuisance, and in as inodorous a manner and as free from foul odors and gases as possible. (1948 C., Ch. 53, §§ 7, 8; 1960 C., § 502.070; 1994 C., § 11.16.070.)

For vault cleaners, see Ch. 8.108.

11.16.080 Enforcement.

It is hereby made the duty of all sanitary and police officers to report and prosecute any and all violations of this chapter. (1948 C., Ch. 53, § 9; 1960 C., § 502.090; 1994 C., § 11.16.080.)

11.16.090 Water closet requirements.

Whenever connection with a sewer is possible all privy vaults, school sinks and other similar receptacles used to receive fecal matter, urine or sewerage shall be completely emptied and their contents removed, and the holes disinfected to the satisfaction of the Health Commissioner and then filled. In place of such abolished privy vaults or other similar receptacles, individual water closets shall be provided. The water closet appliances shall be of durable nonabsorbent material, properly sewer connected, with individual traps and with properly connected flush tanks providing an ample flush of water to cleanse the bowl thoroughly and with suitable provisions to prevent freezing. Every such water closet shall be located in a compartment not less than two feet, six inches wide, completely separated from every other closet, and such compartment shall be ventilated by means of a window or transom not less than two square feet in area. The floors of such water closet compartment shall be water-tight. No woodwork shall enclose the space underneath the seat of water closets. A separate water closet shall be provided for each family or apartment in every existing tenement house or on the lot on which such tenement house is built, and the head of each family so provided with such water closet shall be responsible for the misuse of the same. No water closet shall be maintained in any cellar of any tenement house without a special permit from the Board of Public Service, upon application therefor approved by the Health Commissioner. (1948 C., Ch. 53, § 10; 1960 C., §§ 502.100, 502.110; 1994 C., § 11.16.090.)

Cases:

Part of city ordinance requiring each dwelling unit to have a bath connected to hot and cold water held unconstitutional as applied. *City of St. Louis v. Brune,* 515 S.W. 2d 471 (1974).

Ordinances requiring privy vaults to be removed and replaced by water closets held within power of city of St. Louis. *City of St. Louis v Nash*, 260 S.W. 985 (1924), *City of St. Louis v. Hoevel Real Estate and Building Co.,* 59 S.W. 2d 617 (1933).

Chapter 11.18

LITTERING

Sections:

11.18.010 Definitions.
11.18.020 Public places.
11.18.030 Occupied private property.
11.18.040 Vacant lots.
11.18.050 Placement of receptacles to prevent scattering.
11.18.060 Duty to keep sidewalks, parkways, gutters, streets and alleys free of litter and objects.
11.18.070 Persons in vehicles throwing litter.
11.18.075 Throwing litter—Penalty for violation.
11.18.080 Truck loads causing litter.
11.18.090 Parks.
11.18.100 Lakes, rivers, and fountains.
11.18.110 Parking stations.
11.18.120 Nurserymen.
11.18.130 Vending operations.

11.18.140 Household goods in sidewalk or street.
11.18.150 Dropping litter from aircraft.
11.18.160 Posting notices.
11.18.170 Handbill distribution—Public places.
11.18.180 Handbill distribution—Vehicles.
11.18.190 Handbill distribution—Properly posted.
11.18.200 Handbill distribution—Inhabited premises.
11.18.210 Snow removal.
11.18.220 Enforcement.
11.18.230 Prosecution procedures.
11.18.240 Penalty for violation.

11.18.010 Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivatives shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words used in the plural number include the singular number, and words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

A. "Commercial handbill" is any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet or any other printed or otherwise reproduced original or copies of any matter of literature:

1. Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement and is distributed or circulated solely for advertising purposes, or solely for the private benefit and gain of the persons or legal entities engaged in the advertising in the above-described handbill; and

2. Which advertises for sale any service, merchandise, product, commodity or thing; or

3. Which directs attention to any business, merchandise or commercial establishment or other activity for the purpose of either directly or indirectly promoting the interest thereof by sales; or

4. Which directs attention to or advertises any meeting, theatrical performance, exhibition or event of any kind, for which an admission fee is charged for the purpose of private gain or profit but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition, or event of any kind, which is held, given or takes place in connection with the dissemination of information which is not restricted under the ordinary rules of decency, good morals, public peace, safety and good order, provided, that nothing contained in this clause shall be deemed to authorize the holding, giving or taking place of any meeting, theatrical performance, exhibition or event of any kind, without a license, where such license is or may be required by any law of this state or under any ordinance of this City.

B. "Drive-in restaurant" for the purposes of this chapter only, means any restaurant where food, frozen desserts or beverages sold from such restaurant are regularly available for consumption out-of-doors, on bicycles or in motor vehicles or other types of vehicles.

C. "Health officer" means any person who is employed by the Health Department of the City as a health sanitarian or any employee of the Health Department of the City who is employed as a health sanitarian and is also an appointee of the Marshal of the City as a deputy marshal.

D. "Litter" means any refuse or waste material of any kind whatever.

E. "Newspaper" means any newspaper of general circulation as defined by general law, any newspaper duly entered with the Post Office Department of the United States, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto, means and includes any periodical or current magazine regularly published with not less than four issues per year and sold to the public.

F. "Noncommercial handbill" means any printed or written matter, any sample, or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet or any other printed or otherwise reproduced original or copies of any matter of literature other than a "commercial handbill" or "newspaper," as defined herein.

G. "Neighborhood stabilization officer" means an employee of the Neighborhood Stabilization Team who has been designated as an officer and is also known as a Neighborhood Improvement Specialist.

H. "Occupant" means any person who, alone or jointly or severally with others, shall be in actual possession of any dwelling unit or of any other improved real property, either as owner or as a tenant, either with or without the consent of the owner thereof.

I. "Owner" means any person who, alone or jointly or severally with others, shall be in actual possession of, or have charge, care or control of any dwelling unit or of any other improved real property, as title holder, as employee or agent of the title holder, or as trustee or guardian of the estate or person of the title holder, including any land or lot in the City absent of any structures.

J. "Park" means a park, reservation, playgrounds, beach, recreation center, or any other public area in the City, owned or used by the City and devoted to active or passive recreation.

K. "Parkway" means a strip of land located between a sidewalk and a physical street, whether such land is located on a part of the street right-of-way or not.

L. "Person" means any individual, firm, partnership, association, corporation, company or organization of any kind.

M. "Place of business" means any place other than "private premises," "public building," or "public place," including any building or place used for commerce, religious services, vending a product or for public transport, as herein defined.

N. "Premises" means any building, place of business activity, or other place commonly includable in the term "premises," and includes adjacent sidewalks, gutters, streets, and other ways to center line. "Private premises" are premises designed or used in whole or in part for private residential purposes, and shall include yards, grounds, walks, driveways, porches, mailboxes, and appurtenances.

O. "Public building" means any building owned or occupied by any governmental agency.

P. "Public place" means any kind and all streets, including street rights-of-way, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds and buildings.

Q. "Public receptacle" means a litter storage and collection receptacle furnished by any "person" as defined herein, or by any governmental agency for use by the public. (1960 C., § 805.010; 1994 C., § 11.18.010; Ord. No. 67887, § 1, 2008; Ord. No. 56726, § 1(part), 1974.)

11.18.020 Public places.

No person shall throw, deposit, accumulate or cause or allow to be thrown, deposited or accumulated litter in or upon any sidewalk, parkway, gutter, street, alley or other public place within the City except in public receptacles or in authorized receptacles for collection. (1960 C., § 805.020; 1994 C., § 11.18.020; Ord. No. 56726, § 1(part), 1974.)

RSMo:

RSMo 577.070 (2016) Littering roadways and water.

McQuillin:

24.562 Littering streets.

11.18.030 Occupied private property.

No person shall throw, deposit or store litter on any occupied private property within the City, whether owned by such person or not, except that the owner or person in control of private property may maintain public receptacles or authorized receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any place. (1960 C., § 805.030; 1994 C., § 11.18.030; Ord. No. 56726, § 1(part), 1974.)

11.18.040 Vacant lots.

No person shall throw, deposit or store litter on any open or vacant private property within the City, whether owned by such person or not. (1960 C., § 805.040; 1994 C., § 11.18.040; Ord. No. 56726, § 1(part), 1974.)

11.18.050 Placement of receptacles to prevent scattering.

Persons placing litter in public receptacles or in authorized receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any place. (1960 C., § 805.050; 1994 C., § 11.18.050; Ord. No. 56726, § 1(part), 1974.)

11.18.060 Duty to keep sidewalks, parkways, gutters, streets and alleys free of litter and objects.

All persons owning or occupying any private property, public building or premises shall keep such premises, as the case may be, including the sidewalk, parkway, gutter, street, and alley (to the center line thereof) adjoining or abutting to the place so occupied free and clear of litter. To this end:

A. All persons occupying, leasing, owning, or in control of any premises shall keep such premises clear of litter. No person shall sweep or deposit litter onto any public place.

B. The operator of a drive-in restaurant shall, at all times and at least, once in each twelve-hour period during the restaurant's operation, dispose of all litter

on the premises, in authorized receptacles. The operator of a drive-in restaurant to provide at least one authorized receptacle, accessible to its patrons, at each entrance or exit to the premises on which such drive-in restaurant is located. The operator of a drive-in restaurant to provide at least one authorized receptacle, accessible to its patrons in the drive through lane from the driver's side of the automobile at a location between the drive through window and the public right-of-way.

C. A person occupying a place of business, or an authority in control of a public building shall, at all times and at least, once in each twenty-four-hour period during which it is open for business or to the public, collect and dispose of all litter on the premises in authorized receptacles.

For purposes of this subsection, the managing operator of any shopping center shall be deemed to be the occupier of such shopping center, including, but not limited to, parking areas, parking lots and landscaped areas which are not leased or rented to any particular tenant, not including any sidewalks, parkways or gutters adjoining or abutting to any premises rented to a particular tenant.

D. The occupier of any residential premises shall at all times and at least once in each calendar week, collect and dispose of all litter on such residential premises, in authorized receptacles, including the sidewalk, parkway, gutter, street and alley (to center lines thereof) adjoining or abutting to such private premises.

E. The occupier of any shopping center shall keep the area surrounding such premises of such shopping center, including the sidewalk, parkway, gutter, street, and alley abutting or adjoining to the place free and clear of all shopping carts provided by the stores in the said shopping center. (1960 C., § 805.060; 1994 C., § 11.18.060; Ord. No. 68594, §§ 1, 2, 3-16-2010; Ord. No. 65799, § 2, 2002; Ord. No. 56726, § 1(part), 1974.)

11.18.070 Persons in vehicles throwing litter.

No person while an operator or passenger in a vehicle, whether motorized or otherwise, shall throw or deposit litter upon any street, public place within the City, or upon private property, nor shall any operator of a vehicle allow or permit the throwing or disposing of any litter from such vehicle by himself or by any passenger thereof upon any street or public place within the City, or upon private property. If a person allows or permits the throwing or disposing of litter from a vehicle being operated by him, such person shall be deemed prima facie to have violated this section. (1960 C., § 805.070; 1994 C., § 11.18.070; Ord. No. 62050, § 2, 1990; Ord. No. 56726, § 1(part), 1974.)

11.18.075 Throwing litter—Penalty for violation.

Any person convicted of violating the provisions of Section 11.18.070 shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). If a person is convicted of a second violation of this chapter within a five (5) year period, such person shall be punished by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00). A person convicted of a third violation of Section 11.18.070 shall be punished by a fine of not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00). A person convicted of a fourth violation of Section 11.18.070 shall be punished by a fine of not less than four hundred dollars ($400.00) nor more than five hundred dollars ($500.00). A person convicted of a fifth or subsequent violation of Section 11.18.070 shall be punished by a fine of five hundred dollars ($500.00). (1994 C., § 11.18.075; Ord. No. 62050, § 3, 1990.)

11.18.080 Truck loads causing litter.

No person shall drive or move, or direct or employ a driver to drive or move, any truck or other vehicle within the City unless such truck or other vehicle is so constructed or loaded or covered as to prevent any load, contents or litter from being blown, deposited or stored upon any street, alley or other public way. Nor shall any person drive or move, or direct or employ a driver to drive or move, any vehicle or truck within the City, the wheels or tires of which carry onto or deposit in any street, alley or other public way, mud, dirt, sticky substances, litter or foreign matter of any kind. (1960 C., § 805.080; 1994 C., § 11.18.080; Ord. No. 56726, § 1(part), 1974.)

11.18.090 Parks.

No person shall throw or deposit or store litter in any park within the City except in public receptacles and in such manner that the litter will be prevented from being carried or deposited by the elements upon any place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein. (1960 C., § 805.090; 1994 C., § 11.18.090; Ord. No. 56726, § 1(part), 1974.)

11.18.100 Lakes, rivers, and fountains.

No person shall throw or deposit or store litter in any fountain, pond, lake, stream, river or any other body of water, in a park or elsewhere within the City. (1960 C., § 805.100; 1994 C., § 11.18.100; Ord. No. 56726, § 1(part), 1974.)

11.18.110 Parking stations.

Any owner or person in control of a parking station within the City shall at all times and at least once in each twenty-four-hour period during which it is open for business or to the public, collect and dispose of accumulated litter along the surface and any accumulation next to curbs, parking barriers, fencing or adjacent buildings. (1960 C., § 805.110; 1994 C., § 11.18.110; Ord. No. 56726, § 1(part), 1974.)

11.18.120 Nurserymen.

Every nurseryman or other person who cuts trees or trims shrubs or grass as an independent contractor of the occupant of the premises, or of public utilities, shall remove or cause to be removed all litter from the premises serviced by him. (1960 C., § 805.120; 1994 C., § 11.18.120; Ord. No. 56726, § 1(part), 1974.)

11.18.130 Vending operations.

The person having control of any hawker's vehicle, or other commercial vending or catering operation, shall have the immediate responsibility for the proper disposal of single service utensils, packaging material and other waste material resulting from the conducting of his operation, and shall not leave any particular location until he has collected and properly disposed of such material. (1960 C., § 805.130; 1994 C., § 11.18.130; Ord. No. 56726, § 1(part), 1974.)

11.18.140 Household goods in sidewalk or street.

No person firm, corporation or partnership shall place household goods or household furnishings or any other personal property of any kind, size, or description upon the public way, public easement sidewalk area, concrete sidewalk or area between the concrete sidewalk and the curb, in the public street or alley, parks, playgrounds or parkways of the City. This section shall not be enforced in areas which are participating in a Big Sweep Program operated by the City for the collection of large items of personal property during such time when said program is being conducted. This section shall not be construed to prohibit the use of the sidewalk or street by merchants as authorized by Chapter 20.36. (1960 C., § 805.140; 1994 C., § 11.18.140; Ord. No. 56726, § 1(part), 1974.)

11.18.150 Dropping litter from aircraft.

No person in an aircraft shall throw out, drop or deposit within the City any litter or any other objects. (1960 C., § 805.150; 1994 C., § 11.18.150; Ord. No. 56726, § 1(part), 1974.)

11.18.160 Posting notices.

No person shall post or affix any notice, poster or other paper or device, calculated to attract the attention of the public, to any light standard, public utility pole or shade tree, or upon any public structure or building, or upon any private building without written permission of the owner. (1960 C., § 805.170; 1994 C., § 11.18.160; Ord. No. 56726, § 1(part), 1974.)

11.18.170 Handbill distribution—Public places.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any sidewalk, parkway, street or other public place within the City; provided, however, that it shall not be unlawful on any sidewalk, street or other public place within the City for any person to hand out or distribute, without charge to the receiver, thereof, any commercial or noncommercial handbill or sample to any person willing to accept it. Further provided, however, that the person handing out such handbills or samples shall have the immediate responsibility for the proper disposal of his handbills or samples which are disposed of on the ground by receivers of such handbills or samples and said distributor shall have the responsibility for collecting and properly disposing of all such discarded handbills or samples within a one hundred foot radius of any particular location where a said person is distributing such handbills or samples. (1960 C., § 805.160; 1994 C., § 11.18.170; Ord. No. 56726, § 1(part), 1974.)

11.18.180 Handbill distribution—Vehicles.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any vehicle without the owner's consent. Provided, however, that it shall not be unlawful in any public place for a person to hand out or distribute without charge to the receiver thereof a noncommercial handbill to any occupant of a vehicle who is willing to accept it. (1960 C., § 805.180; 1994 C., § 11.18.180; Ord. No. 56726, § 1(part), 1974.)

11.18.190 Handbill distribution—Properly posted.

No person shall throw, deposit or distribute any commercial or noncommercial handbill upon any private premises, if requested by the owner or person in control of such premises thereon not to do so or if there is placed on said premises in a conspicuous position near the entrance thereof a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Advertisements," or any similar notice indicating in any manner that the occupants of said premises do not desire to be molested or have their right of privacy disturbed, or to have any such handbills left upon such premises. (1960 C., § 805.190; 1994 C., § 11.18.190; Ord. No. 56726, § 1(part), 1974.)

11.18.200 Handbill distribution—Inhabited premises.

No person shall throw, deposit or distribute any commercial or noncommercial handbill in or upon private premises which are inhabited except by handing or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises. Provided, such handbill may be left at premises if so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets or other public places, except that mailboxes may not be so used when so prohibited by federal postal laws or regulations.

The provisions of this section shall not apply to the distribution of mail by the United States, nor to newspapers (as defined herein). (1960 C., § 805.200; 1994 C., § 11.18.200; Ord. No. 56726, § 1(part), 1974.)

McQuillin:

24.389 Regulation of handbills and advertising

11.18.210 Snow removal.

After any fall of snow, owners, managers, agents or occupiers of any premises shall cause the snow to be immediately removed from the improved area of the sidewalk in the public street adjacent to such premises, and the improved area of the sidewalk shall also be kept clear of ice at all times. If no part of the sidewalk area be improved, then a lane five feet wide in the sidewalk area shall be kept free from snow and ice at all times. Where structures contain six or more units, it shall be the duty of the owner or agent of the owner to comply with this provision. Where structures contain between one and six units, it shall be the duty of the person occupying the units nearest the public street, as well as the owner or agent of the owner, involved to comply with the requirements of this section. (1960 C., § 805.210; 1994 C., § 11.18.210; Ord. No. 56726, § 1(part), 1974.)

11.18.220 Enforcement.

It shall be the duty of the health officers, deputy fire inspectors, neighborhood stabilization officers, and police officers to enforce the provisions of this chapter as follows:

A. Whenever a health officer, neighborhood stabilization officer, a deputy fire inspector or a police officer shall find upon any parcel of land a condition existing in violation of this chapter, he shall proceed as follows:

1. If the officer determines that a violation of Sections 11.18.030, 11.18.040, 11.18.060, 11.18.110 and/or 11.18.140 exists, then the officer may utilize the enforcement, prosecution, and administrative procedures under Chapter 25.33 of the Code; or

2. He may, at his discretion, issue a notice of violation of any provision of this chapter to the violator by mail, by service, or by posting the notice on the premises, which notice will explain the violation and demand its abatement forthwith or within a reasonable period of time. The time for abatement may be extended, at the discretion of the enforcing officer for a period not to exceed six months. No extensions of time for abatement may be granted if public health is endangered by existence of the violation. If abatement does not occur as demanded, the health officer, deputy fire inspector, neighborhood stabilization officer or police officer may make application to the City Counselor who, if satisfied that there are reasonable grounds to believe that an offense has been committed and that a case against the accused can be made, shall file an information with the City Court, pursuant to Supreme Court Rule 37.08.

B. In any case in which it is lawful for a police officer to arrest a person without warrant, at his discretion or at the request of a health officer, neighborhood stabilization officer, or deputy fire inspector, he may forthwith serve the person with a summons instead of arresting the accused.

C. Nothing in this section shall impair or interfere in any way all of the rights, powers, and duties of the Health Commissioner to abate nuisances pursuant to the provisions of Chapter 11.58 or Articles I (25) or XIII (14C(c)) of the City Charter. The Health Commis-

sioner may pursue all enforcement remedies contained in this chapter and all other applicable chapters of this Code, including Chapter 11.58, against violators of this chapter. (1960 C., § 805.220; 1994 C., § 11.18.220; Ord. No. 67887, § 2, 2008; Ord. No. 56726, § 1(part), 1974.)

11.18.230 Prosecution procedures.

A summons instead of a warrant may issue on the filing of an information if the judge or prosecutor has good reason to believe the accused will appear in response thereto. The summons shall describe the offense charged and shall command the accused to appear at a stated time and place in answer thereto. The summons may be served in the same manner as a summons in a civil action. If the accused fails to appear as commanded by the summons, a warrant of arrest shall be issued. (1960 C., § 805.240; 1994 C., § 11.18.230; Ord. No. 56726, § 1(part), 1974.)

11.18.240 Penalty for violation.

A. *Penalty for Violations Enforced under Chapter 25.33.* Violations of this chapter enforced and/or prosecuted under Chapter 25.33 of the Code shall be assessed the penalty set forth in Chapter 25.33. Any person, corporation or other legal entity appealing the assessed penalty shall file an appeal pursuant to the provisions in Chapter 25.33.

B. *Penalty for Violations Enforced under Chapter 11.18.* Any person, corporation or other legal entity which violates any of the provisions of this chapter or participates in the violations of its provisions, either as a proprietor, owner, tenant, manager, superintendent or otherwise, provided that the violations are not enforced under Chapter 25.33, shall be guilty of a misdemeanor and upon the conviction thereof shall be punished by a fine of not less than twenty-five dollars ($5.00) and not more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or both such fine and imprisonment; except that any person who violates the provisions of Section 11.18.070 prohibiting littering by persons in vehicles shall upon the conviction thereof be punished by a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00). Each day that any violation hereunder shall continue shall constitute a separate offense and shall be subject to the penalties hereinabove set forth. (1960 C., § 805.250; 1994 C., § 11.18.240; Ord. No. 67887, § 3, 2008; Ord. No. 58818, § 1, 1983; Ord. No. 56726, § 1(part), 1974.)

Chapter 11.20

RESERVED

Editor's note:

Ord. No. 71934, § 6, approved November 26, 2024, amended the Code by repealing former ch. 11.20, §§ 11.20.010 and 11.20.020, in it's entirety. Former Ch. 11.20 pertained to insane persons, and derived from the 1948 Code, Ch. 51, § 4; the 1960 Code, §§ 495.010, 495.020; and the 1994 Code, §§ 11.20.010 and 11.20.020.

Chapter 11.22

LEAD POISONING

Editor's Note:

Ord. No. 71646, adopted February 21, 2023, amended the Code by repealing former Ch. 11.22, §§ 11.22.010—11.22.21f0, and added a new Ch. 11.22. Former Ch. 11.22 pertained to similar subject matter, and derived from the 1994 Code, §§ 11.22.010—11.22.210; Ord. No. 56091 of 1972; Ord. No. 57791 of 1979; and Ord. No. 64690 of 1999.

RSMo:

RSMo 701.300 (2016) Lead abatement and prevention of lead poisoning.

Sections:

11.22.010 Title.
11.22.020 Purpose.
11.22.030 Definitions.
11.22.040 Lead-bearing substances—Use.
11.22.050 Lead-bearing substances—Manufacture and sale of articles.
11.22.060 Warning labels.
11.22.070 Reports.
11.22.080 Inspections—Generally.
11.22.090 Inspections—Reported addresses.
11.22.100 Inspections—Required when other inspections conducted.
11.22.110 Inspections—Reports and samples.
11.22.120 Notice—Violation—Condemnation—Nuisance—Injunctions.
11.22.130 Treatment required.
11.22.140 Treatment of exposed surfaces.
11.22.150 Retaliatory eviction.
11.22.160 Other proceedings.
11.22.170 Lead inspection certification.
11.22.180 Rights of action.
11.22.190 Enforcement.

11.22.200 Appeals.
11.22.210 Penalty for violation.
11.22.220 Only lead abatement contractors perform abatement projects; exception for own home.
11.22.230 Building permits; inspection and risk assessment; inspection and work requirements.
11.22.240 Lead abatement project; contractor notice to building commissioner; fine.
11.22.250 Duties of independent certified supervisor.
11.22.260 Public complaints received by the Division.
11.22.270 Lead abatement project—Periodic inspection.
11.22.280 Post-abatement clearance procedures.
11.22.290 Lead abatement contractor listing maintained by Building Commissioner.
11.22.300 Severability clause.
11.22.310 Effective date; emergency clause.
11.22.320 Codification.

11.22.010 Title.

This chapter shall be known and may be cited and referred to as the "Lead Poisoning Control Law."
(Ord. No. 71646, 2-21-2023.)

11.22.020 Purpose.

This chapter's purpose is to detect, treat, and prevent lead poisoning from the internal consumption (including without limitation ingestion, inhalation and absorption) of lead-bearing substances, which internal consumption is hereby declared to constitute a serious public health hazard.
(Ord. No. 71646, 2-21-2023.)

11.22.030 Definitions.

For the purpose of this chapter, the following words, terms and phrases shall have the following respective meanings, unless otherwise specifically provided:

A. *Abatement* means any measure or set of measures designed to permanently or substantially or incidentally eliminate Lead-based hazards in any lead-bearing substance. "Abatement" includes, but is not limited to:

1. The removal of paint, paint dust, or any lead-bearing substance;

2. The permanent or substantial enclosure or encapsulation of lead-based paint or any lead-bearing substance;

3. The replacement of painted surfaces or fixtures or any lead-bearing substance;

4. The removal or permanent or substantial covering of soil, when lead-based hazards in any lead-bearing substance are present;

5. All preparation, cleanup, disposal, and post-abatement clearance testing activities associated with measures described in items 1 through 4 with a test kit recognized by the Environmental Protection Agency under 40 C.F.R. § 745.88, as amended from time to time;

6. "Abatement" further includes, but is not limited to:

a. Projects for which there is a written contract or other documentation, which provides that any business entity or person (as defined in this section) will be conducting activities in or to a building or structure that:

i. Shall result in the permanent or substantial elimination of lead-based hazards in any lead-bearing substance; or

ii. Are designed to permanently or substantially eliminate lead-based hazards in any lead-bearing substance.

b. Projects resulting in the permanent or substantial elimination of lead-based hazards in any lead-bearing substance, conducted by any business entity or person (as defined in this section) who, through their company name or promotional literature, represent, advertise, or otherwise hold themselves out to be in the business of performing abatement activities;

c. Projects resulting in the permanent or substantial elimination of lead-based hazards in any lead-bearing substance, that are conducted in response to state or local abatement orders.

7. "Abatement" includes renovation, demolition, remodeling, landscaping or other activities, when such activities are not solely designed to either permanently substantially eliminate lead-based paint hazards, but, instead, are designed to repair, restore, or remodel a given structure or dwelling, when these activities may incidentally result in a reduction or elimination of lead-based paint hazards.

B. *Building Commissioner* means the Building Commissioner of the City of St. Louis or the Building Commissioner's duly authorized delegate or representative.

C. *Building* means any structure built before 1978 excluding any dwelling.

D. *Building permit* means any permit issued by the Building Division involving abatement, renovation, or demolition of a building or structure built before 1978.

E. *City of St. Louis Lead Inspection and Hazard Control Division* means that unit of government within the City of St. Louis Building Division.

F. *Clearance testing* means any EPA approved environmental sampling method for measuring the presence of lead after remediation or abatement has been performed with a test kit recognized by the Environmental Protection Agency under 40 C.F.R. § 745.88, as amended from time to time.

G. *Demolition* means the wrecking, razing, burning, or removing of any building, structure, dwelling or load-supporting structural member or portion of a structure together, including but not limited to properly disconnected inoperable components and incidental fixtures such as pipes, lines, and infrastructure materials together with any related handling operation which was built before 1978 or built after 1978 and in the Building Division's sole opinion reasonably expected to contain lead.

H. *Dust wipe sampling* means collection method as specified by HUD to determine if lead containing dust is present in excess of acceptable levels.

I. *Dwelling* means: (1) a structure, built before 1978, all or part of which is designated or used for human habitation, (2) a day care center, or (3) a school; and their related, ancillary, or accessory structures, including without limitation garages, carports, sheds, carriage houses, fences and gates. dwelling does not include an owner-occupied home or multi- unit housing structure consisting of four (4) or fewer units owned by a non-commercial owner. "Non-commercial" shall mean anyone who by themselves or through another person or entity owns less than three (3) multi-unit housing structures consisting of four (4) or less units each.

J. *Dwelling unit* means any room, group of rooms or other interior area of a Dwelling, all or part of which room, group of rooms or other interior area of a Dwelling, all or part of which room, group of rooms or other interior area is either (1) designed or used for human habitation, or (2) commonly occupied by children in a day care center or a school.

K. *Emergency situation* means any lead abatement project that results from a sudden, unexpected event which poses an immediate threat to human health or the environment.

L. *EPA* means the Environmental Protection Agency or the agency that succeeds it.

M. *EPA certified risk assessor* means an individual who has been trained by a program accredited by the EPA pursuant to 40 C.F.R. § 745.225, as amended from time to time, to provide training for individuals engaged in Lead-based paint activities, and certified by the EPA to conduct risk assessments. A risk assessor also samples for the presence of lead in dust and soil for

the purposes of abatement clearance testing with a test kit recognized by the Environmental Protection Agency under 40 C.F.R. § 745.88, as amended from time to time.

N. *Exposed surface* means any interior or exterior surface of a dwelling, dwelling unit, building or structure.

O. *Health Commissioner* means the Health Commissioner of the City of St. Louis or the Health Commissioner's or duly authorized delegate or representative.

P. *HEPA vacuuming* means a special vacuum device that is fitted with high-efficiency particulate air (HEPA) filter.

Q. *HUD* means United States Department of Housing and Urban Development or the agency that succeeds it.

R. *Independent EPA-certified inspector* means a person who individually holds a current valid certification as a certified inspector under 40 C.F.R. § 745.226 as amended from time to time, and neither the inspector individually nor the business entity on whose behalf they are performing work share any common ownership nor common employees with any person or business entity appearing on an application for a building permit under 11.22.230 as persons or business entities performing work as a contractor or subcontractor or otherwise qualifies as a lead abatement contractor under this section.

S. *Independent EPA-certified risk assessor* means a person who individually holds a valid certification as a certified risk assessor under 40 CFR § 745.226 as amended from time to time, and neither the assessor individually nor the business entity on whose behalf they are performing work share any common ownership nor common employees with any person or business entity appearing on an application for a building permit under 11.22.230 as persons or business entities performing work as a contractor or subcontractor.

T. *Independent EPA-certified supervisor* means a person who individually holds a valid certification as a certified supervisor under 40 CFR § 745.226 as amended from time to time, and neither the supervisor individually nor the business entity on whose behalf they are performing work share any common ownership nor common employees with any Person or business entity appearing on an application for a building permit under 11.22.230 as persons or business entities performing work as a contractor or subcontractor.

U. *Interim controls* means a set of measures designed to temporarily reduce human exposure or likely exposure to lead-based paint hazards including, but not limited to, specialized cleaning, repairs, maintenance, painting, temporary containment, and ongoing monitoring of lead-based paint hazards, and the establishment and operation of management and resident education programs. Interim control does not include anything contained in the "lead abatement" definition above, including but not limited to demolition.

V. *Lead-bearing substance* means any paint, varnish, lacquer, putty, plaster, structural material or similar substance which contains one-half of one (0.5) percent or more by weight of metallic lead based upon total non-volatile content, or one milligram or more per square centimeter (1.0 mg/cm^2).

W. *Lead abatement contractor* means:

1. Any person (as defined in subsection EE below) that participates in a registered apprenticeship program under 29 CFR Part 29, Subpart A that yearly graduates registered apprentices and teaches practices and safety techniques used in, and particular to, lead abatement;

2. Only employs persons on lead abatement projects who individually hold current certifications through an accredited training program under 40 C.F.R. § 745.226; and

3. To ensure the lead abatement contractor is a true neutral third-party dedicated to the public's interest, no person employed by an owner or operator for demolition or renovation activity, or person performing or project managing the demolition, construction, reconstruction, alteration, or occupancy on or at the site, or by or with a person that shares a same, in whole or in party, ownership or control group will be considered a lead abatement contractor if it also acts in principle or in fact as the independent EPA certified risk assessor or Independent EPA certified inspector on the same project.

X. *Lead abatement project* means the abatement of lead-based hazards in any lead-bearing substance outlined by an independent EPA-certified lead risk assessor on a report submitted in conjunction with an application for a building permit for the demolition, renovation, or abatement of any building, structure, or dwelling as defined in (I).

Y. *Lead abatement project notification* means:

1. All information and documentation which would be submitted to the Missouri Department of

Health and Senior Services at least ten days prior to the onset of a lead abatement project in accordance Section 701.309, RSMo, and 19 CSR 30-70.640, as amended from time to time, inclusive of an Occupant protection plan in accordance with 19 CSR § 30-70.630(7).7, as amended from time to time;

2. Documentation of the actual dates and times of the project;

3. The names of the on-site independent EPA-certified supervisor, and lead abatement worker or workers who will be performing work on the project along with copies of all current EPA certifications;

4. Description of the work practices which, at a minimum, shall comply with those standards described in 40 C.F.R. § 745.227, as amended from time to time;

5. Name of the independent EPA-certified risk assessor or independent EPA- certified inspector who will perform all post-abatement clearance procedures; and

6. Any additional information requested by the building commissioner.

Z. *Lead abatement worker* means a person employed by a lead abatement contractor and working on a lead abatement project who is also trained by a program accredited by the EPA delivering a minimum of sixteen (16) training hours with a minimum eight (8) hours devoted to hands-on training activities as prescribed by 40 C.F.R. § 745.225 , as amended from time to time and is employed with a lead abatement contractor at the time this chapter becomes law. Starting sixty (60) days after this chapter becomes law any lead abatement worker working for a lead abatement contractor must also have graduated from, or is contemporaneously enrolled, in a registered apprentice program under 29 CFR Part 29 subpart A.

AA. *Lead hazard* and *lead-based hazard* means any condition that causes exposure to lead from lead-contaminated dust, lead-contaminated soil, or lead-contaminated paint that is deteriorated or present in accessible surfaces, friction surfaces, or impact surfaces that would result in adverse human health effects as well as may be more strictly defined by the EPA.

BB. *Lead-safe* means the complete absence of exposed lead bearing surfaces with clearance testing meeting published EPA standards.

CC. *Occupant protection plan* means a written plan describing the measures and management procedures to protect occupants from exposure to any lead based hazards that at least meets the requirements for such plans as defined in 19 CSR 30-70.630(7).

DD. *Owner* means any person who alone, jointly, or severally with others:

1. Shall have legal title to any premises or dwelling, with or without accompanying actual possession thereof; or

2. Shall have charge, care or control of any premises, dwelling, dwelling unit or other facility as owner or agent of owner, or an executor, administrator, trustee, or guardian of the estate of the owner.

EE. *Person* means any natural person, trustee, court appointed representative, syndicate, association, partnership, firm, club, company, corporation or any officer thereof, business trust institution, agency, government corporation, district, or other political subdivision, or any official or director thereof, contractor, supplier, vendor, vendee, operator, user or owner, or any officers, agents, employees, or other representative, acting either for himself or for any other person in any capacity. The masculine, feminine, singular, or plural is included in any circumstances.

FF. *Post-abatement clearance procedures* means those procedures performed only by an Independent EPA-certified inspector or Independent EPA-certified risk assessor as described in 40 C.F.R. § 745.227(e)(8)-(9), as amended from time to time.

GG. *Relocation* means the temporary removal of residents to a location that has been determined to be lead-safe for the purposes of either protecting a child at risk or in order to remediate lead hazards. The necessity and duration of temporary relocation shall be determined by the Health Commissioner.

HH. *Risk assessment report* means an on-site inspection conducted by an independent EPA-certified risk assessor or the City of St. Louis Lead Inspection and Hazard Control Division to determine the existence, nature, severity, and location of lead-based hazards in any lead-bearing substance, and the provision of a report explaining the results of the investigation and options for reducing lead-based hazards in any lead-bearing substance and which shall include a minimum of:

1. Date of the risk assessment;

2. Address of the property inspected;

3. Name, address and telephone number of the owner(s);

4. Name, signature and certification number of the risk assessor conducting the assessment;

5. Name, address and telephone number of the independent EPA-certified firm conducting the assessment, where applicable;

6. Name, address and telephone number of each laboratory conducting analyses of collected samples;

7. Results of the visual inspection;

8. Testing method and sampling procedure used for identifying lead-based hazards in any lead-bearing substance with a test kit recognized by the Environmental Protection Agency under 40 C.F.R. § 745.88, as amended from time to time;

9. Specific locations of each component or building material tested for lead;

10. Results from on-site testing and, where used, the serial number of any x-ray fluorescence lead testing device;

11. All results from the laboratory analysis of collected lead-bearing substance and dust samples;

12. Any other sampling results;

13. Any background information regarding the physical characteristics of the property and use patterns of the residents that may cause lead exposure to young children;

14. To the extent that they are used as part of the risk assessment, the results of any previous inspections or analyses for lead-based hazards in any lead-bearing substance;

15. A description of the location, type, and severity or identified lead-based hazards in any lead-bearing substance and any other potential lead hazards; and

16. A description of temporary, substantial and/or permanent options to fix each lead-based hazard in any lead-bearing substance found, and a priority for fixing each hazard from the most serious to the least and, where the use of an encapsulant paint or barrier (siding or paneling) is recommended, the report should recommend a maintenance and monitoring schedule for these solutions.

If an independent EPA-certified risk assessor is utilized, to ensure the risk assessor is a true neutral third-party dedicated to the public's interest, no one employed by an owner or operator of a demolition or renovation activity, or person, partnership, or corporation performing or project managing the demolition, construction, reconstruction, alteration, or occupancy on or at the site, or by or with a person, partnership, or corporation that shares a same, in whole or in party, ownership or control group will be considered an independent EPA-certified risk assessor.

II. *Remediation* means the repair of lead-hazardous conditions that may or may not include the complete removal of all lead paint but meets clearance test standards as specified by HUD.

JJ. *Renovation* means the modification of any existing structure, or portion thereof, that results in the disturbance of painted surfaces. The term "renovation" includes (but is not limited to): The removal, modification or repair of painted surfaces or painted components (e.g., modification of painted doors, surface restoration, window repair, surface preparation activity (such as sanding, scraping, or other such activities that may generate paint dust)); the removal of building components (e.g., walls, ceilings, plumbing, windows); weatherization projects (e.g., cutting holes in painted surfaces to install blown-in insulation or to gain access to attics, planning thresholds to install weather-stripping), and interim controls that disturb painted surfaces. A renovation performed for the purpose of converting a building, or part of a building, into target housing or a child-occupied facility is a renovation. The term "renovation" does not include minor repair and maintenance activities.

KK. *Structure* means any built element, including single-family, owner-occupied dwellings, and vacant public or privately owned residential structure built before 1978.

(Ord. No. 71646, 2-21-2023.)

11.22.040 Lead-bearing substances—Use.

No person shall use or apply lead-bearing substances upon:

A. Any exposed surface;

B. Any fixtures or other objects used, installed, or located upon any exposed surface, or intended to be so used, installed or located; or

C. Any furniture, toys or playground equipment.

(Ord. No. 71646, 2-21-2023.)

11.22.050 Lead-bearing substances—Manufacture and sale of articles.

No person shall manufacture, sell or hold for sale any of the following articles which have or contain lead-bearing substances:

A. Any fixtures or other objects intended to be used, installed or located upon any exposed surface;

B. Any furniture, toys or playground equipment.
(Ord. No. 71646, 2-21-2023.)

11.22.060 Warning labels.

No person shall manufacture, sell or hold for sale any lead-bearing substance, unless the lead-bearing substance is placed in a secure container bearing a conspicuous label, securely affixed upon the exterior of the container, on which label appears substantially the following statement in large and prominent letters:

"CAUTION! COMBUSTIBLE! CONTAINS LEAD. HARMFUL IF SWALLOWED. KEEP AWAY FROM HEAT AND OPEN FLAME. DO NOT APPLY ON WINDOW SILLS, TOYS, FURNITURE OR INTERIOR SURFACES OF ROOMS WHICH MAY BE USED BY CHILDREN. AVOID PROLONGED CONTACT WITH SKIN AND BREATHING OF VAPOR OR SPRAY MIST. CLOSE CONTAINER AFTER EACH USE. USE WITH ADEQUATE VENTILATION. KEEP OUT OF THE REACH OF CHILDREN."

(Ord. No. 71646, 2-21-2023.)

11.22.070 Reports.

Lead poisoning is designated a reportable disease or condition, which shall be reported under the appropriate ordinances of the city (as now or hereafter in force), which ordinances are in Chapter 11.56 Part II.
(Ord. No. 71646, 2-21-2023.)

11.22.080 Inspections—Generally.

The Building Commissioner or the Health Commissioner may inspect dwellings, dwelling units, buildings, or structures for the purpose of ascertaining the presence of lead-bearing substances in or upon exposed surfaces on either Commissioners' own inherit authority.
(Ord. No. 71646, 2-21-2023.)

11.22.090 Inspections—Reported addresses.

The Health Commissioner shall immediately inspect for the presence of lead-bearing substances in or upon exposed surfaces of every dwelling or dwelling unit whose address appears in a report filed pursuant to Section 11.22.070.
(Ord. No. 71646, 2-21-2023.)

11.22.100 Inspections—Required when other inspections conducted.

A. In every inspection of a dwelling, dwelling unit, building, or structure conducted by the Health Commissioner (irrespective of whether such inspection is routine, upon a complaint of any nature, pursuant to Section 11.22.090, upon the Health Commissioner's own motion, or otherwise), shall inspect for the presence of lead-bearing substances in or upon exposed surfaces and may remove samples necessary for laboratory analysis.

B. In every inspection of a dwelling, dwelling unit, building, or structure conducted by the Building Commissioner which is within any of the following categories of inspections (irrespective of whether such inspection is routine, upon a complaint of any nature, upon the Building Commissioner's own motion, or otherwise), shall inspect for the presence of lead-bearing substances in or upon Exposed surfaces and may remove samples necessary for laboratory analysis:

1. Minimum housing standards;
2. Hotels;
3. Rooming houses;
4. Boarding houses;
5. Lodging houses;
6. Day care centers;
7. Schools;
8. Building additions for dwellings;
9. Building alterations for dwellings;
10. Occupancy permits for dwellings;
11. Electrical installations;
12. Plumbing installations;
13. Structural condemnations of occupied dwellings;
14. Related, ancillary or accessory structures in all of the above cases.

C. In inspections by the Building Commissioner which are not within any of the preceding categories, the Building Commissioner may in the Building Commissioner's discretion inspect for the presence of lead-bearing substances in or upon exposed surfaces and may remove samples for laboratory analysis.
(Ord. No. 71646, 2-21-2023.)

11.22.110 Inspections—Reports and samples.

The Building Commissioner shall immediately prepare and forward all inspection reports and samples for laboratory analysis to the Health Commissioner.
(Ord. No. 71646, 2-21-2023.)

11.22.120 Notice—Violation—Condemnation—Nuisance—Injunctions.

A. The Health Commissioner, immediately upon completing each inspection and/or obtaining samples

or immediately upon receiving each inspection report and/or samples from the Building Commissioner, shall make a written determination as to whether lead-bearing substances are present in or upon the exposed surfaces of the dwelling, dwelling unit, building, or structure in question. If the Health Commissioner determines that lead-bearing substances are present, he shall immediately give notice in writing thereof to all tenants and occupants, the record owner or owners, and any known managing or rental agent and shall post a copy of said notice upon said dwelling, building or structure in a conspicuous place within ten (10) days of the said written notice.

B. The Health Commissioner shall exercise the authority granted by the provisions of law of the City of St. Louis to declare and abate nuisances, which provisions on the date of the enactment of the ordinance codified in this chapter are contained in Section 14(c) of Article XIII of the Charter of the City of St. Louis, and shall declare and abate said condition as a nuisance. In addition to any ordinance provision, if the person whom the order or notice of the existence of lead-bearing substance is served or mailed does not comply with the order of the Health Commissioner to correct and treat the condition creating the health hazard within the prescribed time period the Health Department may, itself or by contract, correct the condition by remediating the hazard, charge the costs thereof to the owner, and with the approval and assistance of the City Counselor, collect the costs by lien or otherwise. The lien placed on the property shall remain in effect until the property owner reimburses the City of St. Louis' Lead Fund for sixty (60) percent of the costs for remediation made or until the property owner continuously maintains the unit as lead safe for a period of ten (10) years. The property will be periodically inspected to evaluate for compliance and lead hazard violations by the Health Commissioner.

C. The Health Commissioner may also refer any violation of this chapter to the City Counselor's Office for prosecution in the City Courts.
(Ord. No. 71646, 2-21-2023.)

11.22.130 Treatment required.

If said exposed surfaces containing lead-bearing substances are not treated as required by Section 11.22.150 within fourteen (14) days of said notice, then this chapter shall have been violated by any person or entity who is or was a record owner or a managing or rental agent of said dwelling, building, or structure on or after any date on which lead-bearing substances were present in or upon said exposed surfaces, and the Health Commissioner and the City Counselor shall immediately proceed to prosecute each such person or entity. Excepted from any such prosecution are record owners of residential premises containing four (4) or less dwelling units, provided that such owner does not own more than three (3) residential premises.
(Ord. No. 71646, 2-21-2023.)

11.22.140 Treatment of exposed surfaces.

A. The Health Commissioner shall determine whether the lead-bearing substances in or upon exposed surfaces shall be either removed or securely encapsulated. The removal or covering of lead-bearing substances shall be accomplished in a manner which will not endanger the health or life of human beings, and which will result in the safe elimination from the dwelling or dwelling unit and the safe disposal of flakes, chips, debris, dust and other material. Subject to the requirements contained in the two (2) preceding sentences, the Health Commissioner shall determine the manner in which exposed surfaces containing lead-bearing substances shall be treated and may issue rules and regulations concerning such treatment consistent with state and federal law.

B. The City of St. Louis and the Department of Health and Hospitals shall cooperate with any other entity or nonprofit agency which makes housing available to tenants who must leave their primary residence due to lead-paint hazards or on a temporary basis during lead paint remediation. The Department of Health shall create, keep, and update a list of lead-safe residences and temporary housing options for tenants who must vacate their dwelling due to lead paint hazards or during lead paint remediation. The Department shall inspect and certify temporary housing as lead-safe, facilitate the relocation of families and perform environmental testing (dust wipe sampling) with a test kit recognized by the Environmental Protection Agency under 40 C.F.R. § 745.88, as amended from time to time before and after lead-paint hazard remediation.
(Ord. No. 71646, 2-21-2023.)

11.22.150 Retaliatory eviction.

A. No property owner, landlord, or their agent shall terminate any lease, rental agreement, tenancy, or otherwise recover possession of any premise, or file a

lawsuit to recover possession of a premises in whole or in part, because the tenant, or someone acting on their behalf, allowed inspectors onto the premises or dwelling to test for lead, or allowed their child, or any child under their care to be tested for lead poisoning. No violation shall exist hereunder until there has been a final judgment on any eviction. It shall not be considered a violation of this chapter if the family is temporarily relocated during the remediation of lead hazards.

B. No property owner, landlord or their agent shall refuse the occupancy of any said premises to the relocated tenant upon the request of the tenant to reoccupy the premises. Upon completion of the lead remediation the landlord or property owner shall notify the Department of Health and Hospitals. The Department shall conduct a re-inspection within three (3) working days and notify the tenant that the unit is available for re-occupancy. It is the responsibility of the tenant to keep the Department updated as to their location. The tenant must notify the landlord and the Department in writing within ten (10) days of being notified by the Department that they wish to reoccupy the unit.

C. The Court shall consider, among other factors, in determining whether a violation has occurred, whether the termination of tenancy, recovery of possession, or filing of a lawsuit for possession has occurred within sixty (60) days after either the testing of a resident child or the premises for lead.
(Ord. No. 71646, 2-21-2023.)

11.22.160 Other proceedings.

No inspection, determination, notification, prosecution or other action under this chapter shall be delayed in any manner for or by reason of any inspection, determination, notification, prosecution or other action under any other ordinance.
(Ord. No. 71646, 2-21-2023.)

11.22.170 Lead inspection certification.

Landlords wanting to have their units certified as lead inspected may do so for a reasonable fee to be established by the Health Commissioner by contacting, in writing, the Department of Health and Hospital's Environmental Section. A lead inspector will make a comprehensive and thorough inspection and issue an inspection report to the landlord within fourteen (14) days of the inspection. Lead hazardous conditions are to be cited and the presence of intact areas of lead paint noted as potential sources of lead hazards. Units containing chewable lead-painted surfaces will be assisted in encapsulating these surfaces to eliminate them as potential lead hazards. Once compliance has been met a passed lead inspection certificate will be given specifying the date of certification and conditional on the unit being maintained as to prevent any lead containing surfaces from becoming hazardous. Landlords who maintain their units in accordance with this provision are permitted to advertise their units as having "Passed Lead Inspection." A list of units having passed the lead inspection will be kept, updated and maintained jointly by the Departments of Health and Hospitals. No owner may advertise a rental unit as passed lead inspection unless said unit has passed the lead inspection.
(Ord. No. 71646, 2-21-2023.)

11.22.180 Rights of action.

Nothing in this chapter shall be interpreted or applied in any manner to defeat or impair the right of any person or entity to bring a cause of action to enforce this chapter, maintain an action or suit for damage sustained, or equitable relief by reason of or in connection with any violation of this chapter.
(Ord. No. 71646, 2-21-2023.)

11.22.190 Enforcement.

The enforcement of this chapter shall be governed by the enforcement provisions of this chapter and by the enforcement provisions of the Building Officials and Code Administrators (BOCA) Code and the Missouri Rules of Civil and/or Administrative Procedure.
(Ord. No. 71646, 2-21-2023.)

11.22.200 Appeals.

Appeals under this chapter shall be governed by the appeals provisions of the minimum housing standards law of the city (as now or hereafter in force), which provisions are in the building code, Title 25, except that for purposes of this chapter, all references in the provisions to minimum housing standards law shall be read as references to this chapter.
(Ord. No. 71646, 2-21-2023.)

11.22.210 Penalty for violation.

Every person convicted of a violation of any section of this chapter shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) per distinct violation, or by probation at risk of disbarment to perform or act

under this chapter for not more than one hundred eighty (180) days, or by both such fine and such probation at risk of disbarment to perform or act under this chapter together with mandatory costs and attorney's fees at the market rate a court deems appropriate. In addition to record owners of residential premises containing four (4) or less dwelling units who do not own more than two (2) residential premises being exempted from prosecution, no penalties shall be assessed against a record owner for violations occurring at a residential premises at which the record owner permanently and exclusively resides.
(Ord. No. 71646, 2-21-2023.)

11.22.220 Only lead abatement contractors perform abatement projects; exception for own home.

A. Except as authorized by subsection B of this section all lead abatement projects shall only be conducted by a lead abatement contractor in a manner so as to not endanger the health of occupants, tenants, or to persons performing the abatement as outlined in this chapter.

B. A natural person may personally perform lead abatement within a dwelling owned by a non-commercial owner unless a child residing in the building has been identified as having an elevated blood lead level. Prior to beginning such abatement, the owner shall consult with the Missouri Department of Health and Senior Services regarding the most effective method of conducting such lead abatement activities and of the proper procedures in performing those activities. Failure to make such prior notification shall be punishable by such fine in an amount a court of competent jurisdiction deems appropriate, but in no case less than five hundred dollars ($500.00), together with attorney's fees and costs, at the market rate the court deems appropriate.
(Ord. No. 71646, 2-21-2023.)

11.22.230 Building permits; inspection and risk assessment; inspection and work requirements.

A. Regardless of whether the project or any part thereof is designed to substantially or permanently eliminate lead-based paint hazards, all building permit applications for demolition, renovation, or abatement on any building, structure, dwelling, or dwelling unit covered by this chapter shall be accompanied by a certification from an independent EPA-certified inspector that a lead inspection has been conducted within sixty (60) days of application. The application shall also include a corresponding Risk assessment report conducted by an independent EPA-certified risk assessor. The inspection may be conducted, and risk assessment report prepared by the City of St. Louis Lead Inspection and Hazard Control Division, which may charge a user fee to offset the cost of performing such service as determined by the Division.

B. The applicant shall provide a complete and accurate list of the names and addresses of all contractors and subcontractors who have been engaged or hired to perform work together with name of each anticipated and actual lead abatement worker(s) in conjunction with the permit applied for under this section. Lead hazards outlined on the risk assessment report shall only be abated by a lead abatement contractor. The application shall include copies of current certifications held by the lead abatement contractor that will be used in the applied for permit and certification by the lead abatement contractor that the contractor participates in a registered apprenticeship under 29 CFR Part 29, Subpart A.

C. The Building Commissioner shall deny a building permit application under this section if:

1. The application for building permit is not accompanied by the certifications and report as required under subsections A and B of this section;

2. If upon inspection, the independent EPA-certified inspector or risk assessor are also listed as a contractor or subcontractor performing work under the applied for permit, or share common interest, control, or employees with a contractor or subcontractor performing work under the applied for permit;

3. If upon inspection, the Building Commissioner determines the application proposes correcting conditions on the risk assessment report submitted under subsection A of this section by engaging contractors that are not lead abatement contractors or are lead abatement contractors that have forfeited their privilege of conducting such projects in the City of St. Louis.

D. The Building Commissioner may contact the applicant and provide an opportunity to supply further information and documentation prior to denying the application for permit.

E. Where a building, structure, or dwelling has been abated as certified by an independent certified lead inspector or the City of St. Louis Lead Inspection

and Hazard Control Division or where an independent certified lead inspector certifies an acceptable level of lead bearing substances exist in the building, structure, or dwelling then the requirements of subsection A through C of this section shall be deemed satisfied by such certification and the building permit application for the immediate project at issue in the inspection and may not include a risk assessment report. Any additional project will require new inspection and certification for lead.
(Ord. No. 71646, 2-21-2023.)

11.22.240 Lead abatement project; contractor notice to building commissioner; fine.

A. At least ten (10) days prior to the onset of a lead abatement project, the lead abatement contractor shall send to the Building Commissioner the lead abatement project notification. All information submitted with the lead abatement project notification including but not limited to current certifications and work practices maintained on the project shall be submitted to the Building Commissioner under the penalty of perjury, and such information shall be posted for five (5) days by the Building Commissioner in a manner prominently accessible and searchable on the Commissioner's website. All information submitted by a lead abatement contractor in the lead abatement project notification shall be deemed a public record and, upon request, may be freely inspected by any requesting party at no charge.

1. Upon submission, the Building Commissioner shall deny any lead abatement project and lead abatement project notification which fails to comply with provisions of this chapter for including but not limited to:

a. Fails to outline an occupant protection plan in accordance with 19 CSR § 30- 70.630(7).7, as amended from time to time;

b. Fails to outline work practices which at a minimum, comply with 40 C.F.R. 745.227, as amended from time to time;

c. Fails to provide documentation of the actual dates and times of the project;

d. Fails to provide the names and copies of current certifications for the on-site independent EPA-certified supervisor and all lead abatement workers performing work on the project;

e. Fails to provide the name or the independent EPA-certified inspector or independent EPA-certified risk assessor who will perform all post abatement clearance procedures;

f. Fails to certify that interim controls for the lead abatement project are written and submitted to the Building Commissioner, reference when the interim controls were submitted to the Building Commissioner to be maintained with other documents for the project, and name the persons, contractors, and subcontractors responsible for providing the referenced interim controls;

g. Fails to certify that the lead abatement project notification is submitted under the penalty of perjury;

2. The Building Commissioner denying a lead project notification under subsection A.1 of this section shall send notice stating the reasons for denial to the lead abatement contractor and any other applicant listed under the relevant building permit.

3. Lead abatement projects outlined on any lead abatement project notification denied under subsection A.1 of this section shall not commence, or once denied shall cease until the lead abatement contractor receives approval from the Building Commissioner.

B. At least ten (10) days prior to the onset of a lead abatement project, the lead abatement contractor shall provide written notification to the owners and tenants of a dwelling or building disclosing the nature of the lead abatement project, actual dates and times when the work will be performed, potential lead hazards to the owners and tenants, and guidance on how to avoid exposure to lead during the course and scope of the abatement project. If the lead abatement project is conducted in a multi-family dwelling unit such notice shall be deemed given when posted conspicuously in a common area accessible to all tenants. Additionally, the lead abatement contractor shall deliver such notice to tenants of properties immediately adjacent to the lead abatement project.

C. Failure to provide notice as required in this section at least ten (10) days prior to the onset of a lead abatement project shall result in the immediate suspension of any operative permits issued under the imprimatur of the City of St. Louis on any building, structure, or dwelling connected to the lead abatement project. The Building Commissioner shall issue a stop work order directed in writing to the owner of the building, structure, or dwelling where work is being performed and to the contractor performing the work. The stop

work order shall state the general reasons for suspension and shall be accompanied by a fine to the contractor performing unnoticed work on the jobsite payable to the Building Commissioner:

1. Two hundred fifty dollars ($250.00) for a lead abatement contractor's first offense; and

2. Five hundred dollars ($500.00) for a lead abatement contractor's second and any subsequent offense. Each day that any violation shall continue shall constitute a separate offense.

D. Upon suspension, all work must cease until the Building Commissioner is in receipt of the lead abatement project notification and the Building Commissioner reviews all notices required for the lead abatement project. The Building Commissioner may reinstate permits after:

1. The applicable fine under subsection C of this section is paid to the Building Commissioner and deposited into the lead remediation fund of the City of St. Louis;

2. Satisfaction that all required notices have been supplied by the lead abatement contractor to the Building Commissioner and the Missouri Department of Health and Senior Services, where applicable; and

3. Satisfaction that all other conditions for permits issued by the City of St. Louis are met.

E. Any lead abatement contractor found in violation of a fourth offense under this section shall forfeit their privilege to conduct lead abatement projects in the City of St. Louis.

F. If the lead abatement contractor is unable to comply with the notice requirements of this section because of an emergency situation as defined by 11.22.030 and as interpreted by the Building Commissioner, the contractor shall:

1. Notify the Building Commissioner within twenty-four (24) hours of the onset of the project; and

2. Submit the written notification prescribed in subsections A and B of this section to the Building Commissioner no more than five (5) days after the onset of the project.

G. If the Building Commissioner receives notification under subsection F of this section which he or she deems is not an emergency situation as defined by 11.22.30 then the provisions of subsection C through E of this section shall apply.

H. The penalties in this section shall apply as a separate offense for any person performing a lead abatement project work who is not a lead abatement contractor, payable by the contractor, not the putative lead abatement worker.

I. The Building Commissioner shall forward evidence of failure to provide notification to the State or Building Commissioner as mandated by this section to the Circuit Attorney's Office for prosecution as a general offense under the laws of the City of St. Louis or under 701.309, RSMo, as amended from time to time.

J. The Building Commissioner shall forward evidence of other violations of this chapter to the Circuit Attorney's Office for prosecution as a general offense under the laws of the City of St. Louis and or in addition to Section 11.22.210.
(Ord. No. 71646, 2-21-2023.)

11.22.250 Duties of independent certified supervisor.

An independent EPA-certified supervisor is required for each lead abatement project and shall be onsite during all work site preparation and during the post-abatement cleanup of work areas. At all other times when abatement activities are being conducted, the independent EPA-certified supervisor shall be onsite or available by telephone, pager or answering service, and able to be present at the work site in no more than two (2) hours.
(Ord. No. 71646, 2-21-2023.)

11.22.260 Public complaints received by the Division.

A. Any person may make a complaint to the City of St. Louis Lead Inspection and Hazard Control Division alleging acts or practices which may constitute a violation of any provision of this chapter. Complaints received by the division may be received orally or in writing and shall be investigated by means available to the Division including through periodic inspections of lead abatement projects as described in Section 11.22.270.

B. If the City of St. Louis Lead Inspection and Hazard Control Division determines there are reasonable grounds to believe a violation of this chapter has occurred the results of any investigation shall be sent to the Circuit Attorney's Office.

C. This section is not to be read as to deny any person the ability to enforce any portion of this chapter as a private right of action in law or equity.
(Ord. No. 71646, 2-21-2023.)

11.22.270 Lead abatement project—Periodic inspection.

A. Upon a complaint received from the public or its own motion, the Building Commissioner or City of St. Louis Lead Inspection and Hazard Control Division may conduct reasonable and periodic inspections to ensure compliance with this chapter.

B. Periodic inspections may include on-site visits to any lead abatement project to observe and determine whether work performed is in accordance with the lead abatement project notification received by the Building Commissioner and other provisions of this chapter. Agents of the Building Commissioner or City of St. Louis Lead Inspection and Hazard Control Division conducting a periodic inspection of a lead abatement project shall present credentials and announce the purpose of their presence before conducting an inspection.

C. It is unlawful for any person to refuse entry or access requested for inspecting or determining compliance with the provisions of this chapter. Such person may be charged with a violation of this section and punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or by probation with risk of disbarment to act under this chapter, or by both such fine and such disbarment.
(Ord. No. 71646, 2-21-2023.)

11.22.280 Post-abatement clearance procedures.

A. At the conclusion of any lead abatement project an independent EPA-certified inspector or independent EPA-certified risk assessor shall perform post-abatement clearance testing and related procedures.

B. Within ten (10) days of the completion of the lead abatement project the lead abatement contractor shall forward to the Building Commissioner all results of clearance testing performed.
(Ord. No. 71646, 2-21-2023.)

11.22.290 Lead abatement contractor listing maintained by Building Commissioner.

A. The Building Commissioner shall develop and periodically update lists of all lead abatement contractors performing lead abatement projects within the City of St. Louis and shall make such lists available free of charge to interested parties and the public. Any person seeking inclusion onto such listing shall petition the Building Commissioner with proof of such status to be determined by the Building Commissioner.

B. The Building Commissioner shall also keep a listing of all lead abatement contractors who have forfeited their privilege to conduct lead abatement projects in the City of St. Louis pursuant to Sections 11.22.230 and 11.22.240. The Building Commissioner shall make this listing available free of charge to interested parties and the public.
(Ord. No. 71646, 2-21-2023.)

11.22.300 Severability clause.

The provisions of this chapter shall be severable. In the event that any provision of this chapter is found by a court of competent jurisdiction to be invalid, the remaining provisions of this chapter are valid unless the court finds the valid provisions of this chapter are so essentially and inseparably connected with, and so dependent upon, the void provision that it cannot be presumed that the Board of Aldermen would have enacted the valid provisions without the void ones or unless the Court finds that the valid provisions, standing alone, are incomplete and incapable of being executed in accordance with the legislative intent.
(Ord. No. 71646, 2-21-2023.)

11.22.310 Effective date; emergency clause.

The passage of the ordinance from which this chapter derives being deemed necessary for the immediate preservation of the public health, safety and welfare is hereby declared to be an emergency measure and shall become effective immediately upon its passage and approval by the Mayor.
(Ord. No. 71646, 2-21-2023.)

11.22.320 Codification.

The provisions of this chapter as revised herein shall be codified as soon as practicable following its effective date.
(Ord. No. 71646, 2-21-2023.)

Chapter 11.24

DANGEROUS DRUGS, MEDICINES AND INSECTICIDES

McQuillin:

24.410 Generally, pure food and drugs

Sections:

11.24.010 Drugs.
11.24.020 Poisons.
11.24.030 Insecticides or exterminators.

11.24.010 Drugs.

It shall be the duty of every physician within the City prescribing or ordering for external use any poi-

sonous drug or substance to state in his prescriptions or orders in plain writing "for external use," and no apothecary or druggist shall deliver any article thus ordered without the same being properly labeled with the words "for external use."

Any apothecary, druggist, manufacturer or other person violating any provision of this section shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 21; 1960 C., § 494.020; 1994 C., § 11.24.010.)

11.24.020 Poisons.

It is not lawful for any person to sell any drug, medicine, chemical or any other article commonly recognized as a poison, or known to the vendor to be a poison, when taken internally in a dose of a tablespoonful or less, unless the same shall be plainly labeled "poison," with the name of the article and the name and address of the person selling the same. In addition such label shall bear a skull and cross-bones, so as to indicate to any person handling such article that it is poisonous. In no case shall any poisonous article be sold to a minor or other irresponsible person.

Any apothecary, druggist, manufacturer or other person violating any provision of this section shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 47; 1960 C., § 494.010; 1994 C., § 11.24.020.)

11.24.030 Insecticides or exterminators.

No person shall give away, sell or offer for sale, as an insecticide or exterminator, any preparation in powder form containing sodium fluoride or other salt of hydrofluoric acid, unless such powders are distinctly colored Nile blue.

This section shall not be so construed as to apply to compounds or preparations of fluorine or to salts of hydrofluoric acid which are intended to be used for industrial or agricultural purposes. (1948 C., Ch. 46, § 67; 1960 C., Ch. 528; 1994 C., § 11.24.030.)

RSMo:

RSMo 338.090 (2016) Sale of poisons.

Chapter 11.26

FLUORIDE

Sections:

11.26.010 Authority to add to water.
11.26.020 Concentration.

11.26.010 Authority to add to water.

The Water Commissioner is hereby authorized and directed to provide the means and to supplement the fluoride concentrations in the City's public water supply whenever appropriated funds are available for that purpose. (1960 C., § 546.010; 1994 C., § 11.26.010; Ord. No. 47224, § 1, 1954.)

McQuillin:

24.265a, 35.32 Fluoridation of drinking water

11.26.020 Concentration.

Before the addition of fluorides is inaugurated, the method of addition and the maximum and minimum limits of fluoride concentration in the City's water supply shall be approved by the Health Commissioner. These maxima and minima of concentration may be varied from time to time in accordance with standards approved by the Health Commissioner, provided the maximum concentration shall not in any event exceed one part in one million. (1960 C., § 546.020; 1994 C., § 11.26.020; Ord. No. 47224, § 2, 1954.)

Chapter 11.28

RESERVED

Editor's Note:

Ord. No. 71880, §§ 1—24, adopted July 31, 2024, amended the Code by repealing former Ch. 11.28, §§ 11.28.010—11.28.370. Former Ch. 11.28 pertained to abortions; and derived from the Code of 1948, Ch. 46, § 1; the Code of 1960, § 494.040; the Code of 1994, §§ 11.28.010—11.28.370; Ord. No. 56579 of 1973; Ord. No. 56729 of 1974.

Chapter 11.30

RENDERING PLANTS

Sections:

11.30.010 Compliance.
11.30.020 Basic requirements.
11.30.030 Maintenance.
11.30.040 Floors, walls and ceilings.
11.30.070 Remains.
11.30.080 Containers and delivery equipment.
11.30.090 Plumbing and drainage.
11.30.100 Raw materials.
11.30.110 Rules and regulations.
11.30.120 Zoning.
11.30.130 Edible meat by-products.
11.30.140 Penalty for violation.

11.30.010 Compliance.

No person, persons, firm, partnership, association or corporation shall operate or cause to be operated within the limits of the City, any establishment for the purpose of reducing or rendering by heat or other process, inedible slaughter house by-products, fat, bones, animal scraps, offal, or any other inedible like material without complying with the terms and conditions of this chapter. (1960 C., § 520.010; 1994 C., § 11.30.010; Ord. No. 62570, § 3, 1992; Ord. No. 62570, § 3, 1992; Ord. No. 53752, § 1, 1966.)

RSMo:

RSMo Ch. 269 (2016) Disposal of dead animals.

McQuillin:

24.254 Regulation of rendering plants.

11.30.020 Basic requirements.

The basic requirements essential for the operation of such establishments and the protection of public health are set forth in this chapter. (1960 C., § 520.020(part); 1994 C., § 11.30.020; Ord. No. 62570, § 4, 1992; Ord. No. 53752, § 2(part), 1966.)

11.30.030 Maintenance.

A. The buildings and the surrounding area of the premises of the rendering establishment, shall at all times be maintained in an orderly and sanitary condition and reasonable precautions and effective measures shall be taken at all times to keep the premises free from flies, rodents and other insects and vermin. The methods used for maintenance shall include, but not be limited to:

1. A washdown at least once each working day, of equipment, facilities and building interiors and exteriors that come in contact with raw, or partially processed material, with steam or hot water and detergent or equivalent additive if possible; provided, however, that no process shall be required that would damage the equipment or result in a degradation of the product; and

2. All liquid and solid wastes of an animal origin shall be stored in covered containers and disposed of daily in an incinerator or landfill or by contract with a company or municipal department providing such service;

B. A narrative description to accurately portray control practices, including housekeeping measures employed, for all times of the operating process including, but not limited to, the receipt of animal matters, the rendering process, with a record of said washdowns and disposals reflecting the time and person performing said washdown and disposals shall be kept on the premises and be made available for inspection by the health division. (1960 C., § 520.020(a); 1994 C., § 11.30.030; Ord. No. 62570, § 5, 1992; Ord. No. 53752, § 2(a), 1966.)

11.30.040 Floors, walls and ceilings.

The floors, walls and ceilings shall be constructed of an impervious and easily cleaned material. Floors shall be properly drained and kept clean and in good repair. (1960 C., § 520.020(b); 1994 C., § 11.30.040; Ord. No. 62570, § 6, 1992; Ord. No. 53752, § 2(b), 1966.)

11.30.070 Remains.

Whatever residuum remains after the rendering process, shall be so dried or otherwise reasonably deprived of all offensive odors as to preserve the residuum inoffensive, immediately after removal from the receptacles in which the process may be conducted and for the duration of its storage on the premises. No animal matter shall be purposefully left or spilled on the exterior of the premises and any animal matter accidentally left or spilled on the exterior of the premises shall be cleaned immediately. There shall be no unauthorized dropoffs and the person so making the dropoff shall be in violation of this chapter. (1960 C., § 520.020(e); 1994 C., § 11.30.070; Ord. No. 62570, § 7, 1992; Ord. No. 53752, § 2(e), 1966.)

11.30.080 Containers and delivery equipment.

All containers, including trucks, drums and tanks, shall be maintained in a clean condition. Washing facilities for these items must be provided at the rendering establishment, and must be adequate and satisfactorily maintained to accomplish this purpose at the rendering establishment. Vehicles containing raw animal matter shall not remain on the exterior of the premises for more than forty-five (45) minutes. (1960 C., § 520.020(f); 1994 C., § 11.30.080; Ord. No. 62570, § 8, 1992; Ord. No. 53752, § 2(f), 1966.)

11.30.090 Plumbing and drainage.

Plumbing and drainage shall be maintained in a sanitary condition at all times. Such intercepting devices as may be necessary to prevent the discharge of grease or objectionable wastes into the lateral sewers shall be provided and maintained. (1960 C., § 520.020(g); 1994 C., § 11.30.090; Ord. No. 62570, § 9, 1992; Ord. No. 53752, § 2(g), 1966.)

11.30.100 Raw materials.

A schedule of operations shall be such that raw materials are introduced into the reduction process promptly upon arrival at the plant. At no time may animal matter be left outside or otherwise exposed to the ambient air except during the delivery process. All animal matter left or spilled on the exterior of the premises shall be cleaned immediately and in no case shall animal matter used in the rendering process be exposed to the ambient air outside the premises, except during the delivery process. (1960 C., § 520.020(h); 1994 C., § 11.30.100; Ord. No. 62570, § 10, 1992; Ord. No. 53752, § 2(h), 1966.)

11.30.110 Rules and regulations.

The Health Commissioner is empowered to establish and enforce such rules and regulations and to prescribe such operating procedures as may be necessary for the proper and efficient administration of this chapter. (1960 C., § 520.030; 1994 C., § 11.30.110; Ord. No. 62570, § 11, 1992; Ord. No. 53752, § 3, 1966.)

11.30.120 Zoning.

Every such establishment shall comply with the applicable provisions of "The Zoning Code," Title 26, and other ordinances of the City regulating or relating to such use, and shall secure a special permit from the Board of Public Service as required by the Zoning Code. (1960 C., § 520.040; 1994 C., § 11.30.120; Ord. No. 62570, § 12, 1992; Ord. No. 53752, § 4, 1966.)

11.30.130 Edible meat by-products.

If such establishment, in addition to inedible fats and by-products, engages in the rendering of edible meat by-products, it shall comply with the requirements of the ordinances of the City relating to edible rendering, and the applicable rules and regulations of the Health Commissioner. (1960 C., § 520.050; 1994 C., § 11.30.130; Ord. No. 62570, § 13, 1992; Ord. No. 53752, § 5, 1966.)

11.30.140 Penalty for violation.

Any person who shall violate or fail to comply with the provisions of this chapter shall, upon conviction, be punished by a fine of not less than one hundred dollars nor more than five hundred dollars. Each day any violation of any provision of this chapter shall continue shall constitute a separate offense. (1960 C., § 520.070; 1994 C., § 11.30.140; Ord. No. 62570, § 14, 1992; Ord. No. 53752, § 7, 1966.)

Chapter 11.31

SMOKE FREE AIR ACT

Sections:

11.31.010	**Title.**
11.31.020	**Definitions.**
11.31.030	**Application of chapter to City-owned facilities.**
11.31.040	**Prohibitions of smoking in enclosed public places.**
11.31.050	**Prohibition of smoking in places of employment.**

11.31.060 Prohibition of smoking in enclosed residential facilities.
11.31.070 Where smoking not regulated.
11.31.080 Declaration of establishment as nonsmoking.
11.31.090 Posting of signs.
11.31.100 Nonretaliation; nonwaiver of rights.
11.31.110 Enforcement.
11.31.120 Penalty for violation.
11.31.130 Other applicable laws.

11.31.010 Title.

This chapter shall be known as the St. Louis City Smoke Free Air Act of 2009. (1994 C., § 11.31.010; Ord. No. 68481, § 1, 11-9-2009.)

11.31.020 Definitions.

The following words and phrases, whenever used in this chapter, shall be construed as defined in this section:

A. "Bar" means an establishment that is devoted to the serving of alcoholic beverages for consumption by guests on the premises and in which the serving of food is only incidental to the consumption of those beverages, including, but not limited to, taverns, nightclubs, cocktail lounges, and cabarets.

B. "Business" means a sole proprietorship, partnership, joint venture, corporation, or other business entity, either for-profit or not-for-profit, including retail establishments where goods or services are sold; professional corporations and other entities where legal, medical, dental, engineering, architectural, or other professional services are delivered; and private clubs located in the City of St. Louis.

C. "Casino gaming area" means the area of a state licensed gambling facility where gaming is allowed for those 21 years of age or older, including any VIP lounge, accessible only through the game floor, whether or not gaming is allowed in the VIP lounge.

D. "Employee" means a person who is employed by an employer in consideration for direct or indirect monetary wages or profit, and a person who volunteers his or her services for a nonprofit entity.

E. "Employer" means a person, business, partnership, association, corporation, including a municipal corporation, trust, or nonprofit entity located in the City of St. Louis that employs the services of one or more individual persons.

F. "Enclosed area" means all space between a floor and ceiling that is enclosed on all sides by permanent or temporary walls or windows (exclusive of doorways), which extend from the floor to the ceiling.

G. "Health care facility" means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including, but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, psychiatrists, dentists, and all specialists within these professions. This definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

H. "Place of employment" means an area under the control of a public or private employer in the City of St. Louis that employees normally frequent during the course of employment, including, but not limited to, work areas, private offices, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, hallways, and vehicles. A private residence is not a "place of employment" unless it is used as a child care, adult day care, or health care facility.

I. "Private club" means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for pecuniary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a Board of Directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501.

J. "Public place" means an enclosed area to which the public is invited or in which the public is permitted, including, but not limited to, banks, bars, educational facilities, gaming facilities, health care facilities, hotels and motels, laundromats, public transportation vehicles and facilities, reception areas, restaurants, retail food production and marketing establishments, retail

service establishments, retail stores, shopping malls, sports arenas, theaters, and waiting rooms. A private club is a "public place" when being used for a function to which the general public is invited. A private residence is not a "public place" unless it is used as a child care, adult day care, or health care facility.

K. "Restaurant" means an eating establishment, including, but not limited to, coffee shops, cafeterias, sandwich stands, and private and public school cafeterias, which gives or offers for sale food to the public, guests, or employees, as well as kitchens and catering facilities in which food is prepared on the premises for serving elsewhere. The term "restaurant" shall include a bar area within the restaurant.

L. "Service line" means any indoor line at which one (1) or more persons are waiting for or receiving service of any kind, whether or not such service involves the exchange of money.

M. "Shopping mall" means an enclosed public walkway or hall area that serves to connect retail or professional establishments.

N. "Smoking" means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, or pipe in any manner or in any form.

O. "Sports arena" means sports pavilions, stadiums, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, bowling alleys, and other similar places where members of the general public assemble to engage in physical exercise, participate in athletic competition, or witness sports or other events.

P. "Retail tobacco store" means a retail store used primarily for the sale of smoking materials and where more than fifty percent (50%) of the volume of trade or business carried on is that of the blending of tobaccos or sales of tobaccos, cigarettes, pipes, cigars or smoking sundries and in which the sale of other products is incidental and where smoking is permitted within the public place. (1994 C., § 11.31.020; Ord. No. 68481, § 2, 11-9-2009.)

11.31.030 Application of chapter to City-owned facilities.

All enclosed facilities, including buildings and vehicles owned, leased, or operated by the City of St. Louis, shall be subject to the provisions of this chapter. (1994 C., § 11.31.030; Ord. No. 68481, § 3, 11-9-2009.)

11.31.040 Prohibitions of smoking in enclosed public places.

Smoking shall be prohibited in all enclosed public places within the City of St. Louis, including, but not limited to, the following places:

A. Aquariums, galleries, libraries, and museums.

B. Areas available to and customarily used by the general public in businesses and nonprofit entities patronized by the public, including, but not limited to, banks, laundromats, professional offices, and retail service establishments.

C. Bars, except where smoking is not regulated as defined in Section 11.31.070.

D. Bingo facilities.

E. Child care and adult day care facilities.

F. Convention facilities.

G. Educational facilities, both public and private.

H. Elevators.

I. Gaming facilities, except casino gaming areas as outlined in Section 11.31.070.

J. Health care facilities.

K. Hotels and motels.

L. Lobbies, hallways, and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities.

M. Polling places.

N. Private clubs when being used for a function to which the general public is invited.

O. Public transportation vehicles, including buses and taxicabs, under the authority of the City of St. Louis, and ticket, boarding, and waiting areas of public transportation facilities, including bus, train, and airport facilities.

P. Restaurants.

Q. Restrooms, lobbies, reception areas, hallways, and other common-use areas.

R. Retail stores.

S. Rooms, chambers, places of meeting or public assembly, including school buildings, under the control of an agency, board, commission, committee or council of the City of St. Louis or a political subdivision of the state, to the extent the place is subject to the jurisdiction of the City of St. Louis.

T. Service lines.

U. Shopping malls.

V. Sports arenas, including enclosed places in outdoor arenas.

W. Theaters and other facilities primarily used for exhibiting motion pictures, stage dramas, lectures, musical recitals, or other similar performances. (1994 C., § 11.31.040; Ord. No. 68481, § 4, 11-9-2009.)

11.31.050 Prohibition of smoking in places of employment.

A. Smoking shall be prohibited in all enclosed facilities within places of employment in the City of St. Louis except where smoking is not regulated as defined in Section 11.31.070. This includes common work areas, auditoriums, classrooms, conference and meeting rooms, private offices, elevators, hallways, medical facilities, cafeterias, employee lounges, stairs, restrooms, vehicles, and all other enclosed facilities.

B. This prohibition on smoking shall be communicated to all existing employees by the effective date of the ordinance codified in this chapter and to all prospective employees upon their application for employment. (1994 C., § 11.31.050; Ord. No. 68481, § 5, 11-9-2009.)

11.31.060 Prohibition of smoking in enclosed residential facilities.

Smoking shall be prohibited in the following enclosed residential facilities:

A. All private and semi-private rooms in nursing homes.

B. At least eighty percent (80%) of hotel and motel rooms that are rented to guests. (1994 C., § 11.31.060; Ord. No. 68481, § 6, 11-9-2009.)

11.31.070 Where smoking not regulated.

Notwithstanding any other provision of this chapter to the contrary, the following areas shall be exempt from the provisions of Sections 11.31.040 and 11.31.050:

A. Private residences, except when used as a licensed child care, licensed adult day care, or licensed health care facility.

B. Not more than twenty percent (20%) of hotel and motel rooms rented to guests and designated as smoking rooms. All smoking rooms on the same floor must be contiguous and smoke from these rooms must not infiltrate into areas where smoking is prohibited under the provisions of this chapter. The status of rooms as smoking or nonsmoking may not be changed, except to add additional nonsmoking rooms.

C. Private clubs that have no employees, except when being used for a function to which the general public is invited; provided that smoke from such clubs does not infiltrate into areas where smoking is prohibited under the provisions of this chapter. This exemption shall not apply to any organization that is established for the purpose of avoiding compliance with this chapter.

D. Outdoor areas of places of employment.

E. Tobacco retail stores as defined by this chapter.

F. Casino gaming areas as defined by this chapter.

G. Bars in existence on the effective date of the ordinance codified in this chapter in which only persons aged twenty one (21) years old or older are permitted to enter the premises, the square footage of the entire floor area of the level of the building on which the bar establishment is located is two thousand (2,000) square feet or less. The square footage shall not include kitchen areas, storage areas and bathrooms. The bar shall prominently displays outside of the premises at each entrance and above the bar the following sign in lettering that is black bold Arial font at (ninety-eight) 98 point size: "WARNING: SMOKING ALLOWED HERE." This exemption for bars shall expire five (5) years after the effective date of this chapter. (1994 C., § 11.31.070; Ord. No. 68481, § 7, 11-9-2009.)

11.31.080 Declaration of establishment as nonsmoking.

Notwithstanding any other provision of this chapter, an owner, operator, manager, or other person in control of an establishment, facility, or outdoor area may declare that entire establishment, facility, or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of Section 11.31.090 is posted. (1994 C., § 11.31.080; Ord. No. 68481, § 8, 11-9-2009.)

11.31.090 Posting of signs.

A. "No Smoking" signs or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) shall be clearly and conspicuously posted in every public place and place of employment where smoking is prohibited by this chapter, by the owner, operator, manager, or other person in control of that place.

B. Every public place and place of employment where smoking is prohibited by this chapter shall have posted at every entrance a conspicuous sign clearly stating that smoking is prohibited. Every vehicle that constitutes a place of employment under this chapter

shall have at least one conspicuous sign, visible from the exterior of the vehicle, clearly stating that smoking is prohibited.

C. All ashtrays shall be removed from any area where smoking is prohibited by this chapter by the owner, operator, manager, or other person having control of the area. (1994 C., § 11.31.090; Ord. No. 68481, § 9, 11-9-2009.)

11.31.100 Nonretaliation; nonwaiver of rights.

A. No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment, or customer because that employee, applicant, or customer exercises any rights afforded by this chapter or reports or attempts to prosecute a violation of this chapter. Violation of this section shall be a misdemeanor, punishable by a fine not to exceed $500.00 for each violation.

B. An employee who works in a setting where an employer allows smoking does not waive or otherwise surrender any legal rights the employee may have against the employer or any other party. (1994 C., § 11.31.100; Ord. No. 68481, § 10, 11-9-2009.)

11.31.110 Enforcement.

A. This chapter shall be enforced by the Department of Health or an authorized designee.

B. Notice of the provisions of this chapter shall be given to all applicants for a business license in the City of St. Louis.

C. Any citizen who desires to register a complaint under this chapter may initiate enforcement with the Department of Health.

D. The Health Department, Fire Department, or Building Division or their designees shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this chapter.

E. An owner, manager, operator, or employee of an establishment regulated by this chapter shall inform persons violating this chapter of the appropriate provisions thereof.

F. Notwithstanding any other provision of this chapter, an employee or private citizen may bring legal action to enforce this chapter.

G. In addition to the remedies provided by the provisions of this section, the Department of Health or any person aggrieved by the failure of the owner, operator, manager, or other person in control of a public place or a place of employment to comply with the provisions of this chapter may apply for injunctive relief to enforce those provisions in any court of competent jurisdiction. (1994 C., § 11.31.110; Ord. No. 68481, § 11, 11-9-2009.)

11.31.120 Penalty for violation.

A. A person who smokes in an area where smoking is prohibited by the provisions of this chapter shall be guilty of an infraction, punishable by a fine not exceeding fifty dollars ($50.00).

B. Except as otherwise provided in Section 11.31.100.A, a person who owns, manages, operates, or otherwise controls a public place or place of employment and who fails to comply with the provisions of this chapter shall be guilty of an infraction, punishable by:

1. A fine not exceeding one hundred dollars ($100.00) for a first violation.

2. A fine not exceeding two hundred dollars ($200.00) for a second violation within one (1) year.

3. A fine not exceeding five hundred dollars ($500.00) for each additional violation within one (1) year.

C. In addition to the fines established by this chapter, violation of this chapter by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any permit or license issued to the person for the premises on which the violation occurred.

D. Violation of this chapter is hereby declared to be a public nuisance, which may be abated by the Department of Health by restraining order, preliminary and permanent injunction, or other means provided for by law, and the City may take action to recover the costs of the nuisance abatement.

E. Each day on which a violation of this chapter occurs shall be considered a separate and distinct violation. (1994 C., § 11.31.120; Ord. No. 68481, § 12, 11-9-2009.)

11.31.130 Other applicable laws.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws. (1994 C., § 11.31.130; Ord. No. 68481, § 13, 11-9-2009.)

Chapter 11.32

SMOKING

Prior history: Ord. 62236; 1948 C. Ch. 46 § 71; 1960 C. Ch. 811

Smoking in projection booth, see § 8.100.280(P).

Sections:

Part I. Sports Arenas

11.32.010 Definitions.

11.32.020 Where there is an audience.

11.32.030 Penalty for violation of Sections 11.32.010—11.32.030.

Part II. Public Areas

11.32.050 No smoking provisions—Scope.

11.32.060 Definitions.

11.32.070 Places where smoking prohibited.

11.32.075 Places where smoking permitted.

11.32.080 Signs to be posted.

11.32.085 Retaliation prohibited.

11.32.090 Enforcement.

11.32.095 Exceptions.

11.32.100 Penalties for violation.

11.32.105 Reporting.

Part III. Sale of Tobacco Products to Minors

11.32.110 Sale of tobacco products to minors—Unlawful.

11.32.120 Prohibition of Selling, Distributing or Vending Without a Sign.

11.32.130, 11.32.140 Reserved.

11.32.150 Definitions.

11.32.160 Penalty for violation.

11.32.170 Community service.

PART I. SPORTS ARENAS

11.32.010 Definitions.

For the purpose of this chapter, the following words and terms shall have the following meanings:

A. "Multi-sport arena" means any enclosed structure having a minimum of eleven thousand fixed seats, and capable of being used as or occupied by a circus, horse or stock show, rodeo, ice hockey or ice skating event, basketball court, wrestling or boxing ring, a musical or theatrical event requiring the use of actors, singers, dancers or musicians, and tennis court.

B. "Fixed seat" means any seat having a horizontal seat and a vertical or near vertical back, and attached in any way to any permanent portion of the building or enclosed structure. (1994 C., § 11.32.010; Ord. No. 55225, § 1, 1969.)

11.32.020 Where there is an audience.

It is, unlawful for any person to smoke or to carry a lighted cigar, cigarette, pipe or match in or into any portion or room of a multi-sport arena, in which portion or room is located erected circus equipment, a horse or stock show, rodeo, ice hockey or ice skating event, basketball court, wrestling or boxing ring, a musical or theatrical event requiring the use of actors, singers, dancers, or musicians, or tennis court while an audience is in attendance. (1994 C., § 11.32.020; Ord. No. 55225, § 2, 1969.)

McQuillin:

24.239 Cigarettes and tobacco

11.32.030 Penalty for violation of Sections 11.32.010—11.32.030.

Any person who shall violate the provisions of Sections 11.32.010—11.32.030 shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than one dollar nor more than one hundred dollars. (1994 C., § 11.32.030; Ord. No. 55225, § 3, 1969.)

PART II. PUBLIC AREAS

11.32.050 No smoking provisions—Scope.

A. In order to enhance the public health and to protect the public from the real and ascertainable dangers associated with the smoking of tobacco, the provisions of Sections 11.32.050 through 11.32.090 shall apply to and be in effect in any building or part thereof which is owned by the City and which is located within the political boundaries of the City.

B. Further, this chapter shall apply to buildings occupied by the City or agencies of the City, to the extent of its occupancy; intent of this chapter being to limit the area of the ordinance's application to those areas controlled and occupied by the City.

C. Additionally, this chapter shall require all future leases executed by the City for the use and occupancy of the City or its agencies to provide for the provisions of this chapter. (1994 C., § 11.32.050; Ord. No. 62523, § 1, 1992.)

11.32.060 Definitions.

For the purpose of this chapter certain words are defined as follows:

A. "Building" means any building, structure or enclosure which is closed in by a roof and walls with openings for entry and exit.

B. "Department Head" means the head of each department or office established by the City Charter or ordinances or departments established administratively, and includes the administrator of any board commission or council, includes all county office holders elected City-wide.

C. "Director" means the Director of Public Service as defined by the City Charter.

D. "Public area" means that part of a building which is available to the general public for the conduct of business with the City, county or State of Missouri offices or for the provision of services by the City, county or the State of Missouri, and including, but not limited to, lobbies, hallways, meeting and conference halls and rooms, court rooms, office waiting rooms, elevators, stairways and public rest rooms.

E. "Smoke" or "smoking" means having in one's possession a lighted cigar, cigarette, pipe, or any other lit object made of or containing tobacco or other vegetable product. (1994 C., § 11.32.060; Ord. No. 62523, § 2, 1992.)

11.32.070 Places where smoking prohibited.

No person shall smoke in any public or non-public area of any building owned, leased or operated by the City of St. Louis, nor in any public or non-public area of any building occupied by the City of St. Louis to the extent of such occupancy. (1994 C., § 11.32.070; Ord. No. 65991, § 2, 2003.)

11.32.075 Places where smoking permitted.

Smoking shall be permitted within a reasonable distance outside an enclosed area where smoking is prohibited. Within ninety (90) days of the effective date of the ordinance codified in this part the Health Commissioner shall designate safe and convenient smoking areas so as to ensure that tobacco smoke does not enter the area through entrances, windows, ventilation systems, or other means. (1994 C., § 11.32.075; Ord. No. 65991, § 3, 2003.)

11.32.080 Signs to be posted.

A. The Health Commissioner shall cause "No Smoking" signs or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) and "Smoke Free Environment" signs to be clearly and conspicuously posted in every public facility where smoking is prohibited by this chapter.

B. Every public facility where smoking is prohibited by this chapter, including every dining area within such a facility, shall have posted at every entrance a conspicuous sign clearly stating that smoking is prohibited.

C. The Health Commissioner shall cause all ashtrays and other smoking paraphernalia to be removed from any area where smoking is prohibited by this chapter. (1994 C., § 11.32.080; Ord. No. 65991, § 4, 2003.)

11.32.085 Retaliation prohibited.

No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment, or customer because that employee, applicant, or customer exercises any rights afforded by this chapter or reports or attempts to prosecute a violation of this chapter. (1994 C., § 11.32.085; Ord. No. 65991, § 5, 2003.)

11.32.090 Enforcement.

This chapter shall be enforced by the Health Commissioner and the City Marshal. Such enforcement shall begin ninety (90) days after the effective date of the ordinance codified in this part. (1994 C., § 11.32.090; Ord. No. 65991, § 6, 2003.)

11.32.095 Exceptions.

The provisions of this chapter shall not apply to the public areas of the terminal buildings of Lambert-St. Louis International Airport. (1994 C., § 11.32.095; Ord. No. 65991, § 7, 2003.)

11.32.100 Penalties for violation.

A. Any person who violates the provisions of this chapter shall be subject to a fine of not more than fifty ($50.00) dollars or be required to perform not more than eight (8) hours of community service.

B. Any person who is found to have violated the provisions of this chapter on two or more occasions within any six-month period shall be assessed a fine of not more than five hundred ($500.00) dollars and required to perform not more than forty (40) hours of community service.

C. The court is authorized to suspend the imposition of any fine or community service assessed upon the provisions of this section if the defendant completes a court approved smoking cessation program. (1994 C., § 11.32.100; Ord. No. 65991, § 8, 2003.)

11.32.105 Reporting.

Within one hundred eighty (180) days of the effective date of the ordinance codified in this part the Health Commissioner shall submit a written report to the members of the Health and Human Services Committee of the Board of Aldermen detailing the implementation and enforcement of the provisions of this chapter. (1994 C., § 11.32.105; Ord. No. 65991, § 9, 2003.)

PART III. SALE OF TOBACCO PRODUCTS TO MINORS

11.32.110 Sale of tobacco products to minors—Unlawful.

A. For the purposes of this chapter, the following definitions shall apply:

1. "Tobacco" or "Tobacco Product" means any substance containing tobacco leaf, including, but not limited to, cigarettes, cigars, pipe tobacco, snuff, chewing tobacco or dipping tobacco, and also means smokeless tobacco products, hookah tobacco and cigarette papers;

2. "Vending Machine" means any mechanical, electric or electronic self-service device which upon insertion of money, tokens or any other form of payment, dispenses tobacco products, alternative nicotine products or vapor products.

3. "Department" means the Department of Health of the City of St. Louis.

4. "Proof of Age" means a driver's license or other documentary or written evidence that the individual is twenty-one years old or older.

B. Sale or Distribution To Person Under 21 Years Old Prohibited.

1. No person shall sell or distribute tobacco products to any person under twenty one (21) years old.

2. Any person found to have sold or distributed any tobacco product to a family member who is under twenty one (21) years old shall be deemed to be in violation of Subsection B.1 of this section.

3. It shall be unlawful for any person under the age of twenty one (21) years old to represent that he or she has attained the age of twenty-one (21) years old for the purpose of purchasing, asking for in any way, or receiving tobacco products, except in cases authorized by law, including as authorized by the Department or law enforcement.

4. It shall be unlawful for any person to give, lend, sell or otherwise provide any person under the age of twenty-one (21) years old any falsified identification or identification of another person for the purpose of establishing the age of the individual as being twenty-one (21) years old or older.

5. Any person selling or distributing tobacco products shall require proof of age from the prospective purchaser or recipient is twenty-one (21) years old or older.

6. If a sale or distribution of tobacco products is made by an employee of the owner of an establishment in violation of this section, the employee acting on behalf of the owner, as well as the owner of the establishment shall be in violation of this section.

C. Sales or Distribution in Public Areas Prohibited. No person shall sell or distribute tobacco products, alternative nicotine products or vapor products to any person in or on any public street, public sidewalk, park, school, playground, or other property owned by the City of St. Louis or owned by another governmental entity.

D. Vending Machines.

1. Any vending machine used for the sale or distribution of tobacco products, alternative nicotine products or vapor products may only dispense tobacco products, alternative nicotine products and/or vapor products.

2. Any vending machine must only be located in an area:

a) Where persons under the age of twenty-one (21) years old are denied access; or

b) In public places where persons under the age of twenty-one (21) years old are granted access, but only if the vending machine:

i. Is located in areas of factories, businesses, offices or other places that are not open to the public; or

ii. Is under the continuous active supervision of the owner or lessee of the premises or an employee thereof; or

iii. Can be operated only by the activation of an electronic switch by the owner or lessee of the premises or an employee thereof prior to such purchase; and

iv. Is inaccessible to the public when the premises are closed.

E. Pack of Cigarettes. It shall be unlawful to sell to any person cigarettes in any number amounting to less than one pack containing twenty (20) cigarettes.

F. Penalties. Any person who is determined to have violated any provision of this section shall be fined not less than one hundred dollars ($100.00) for the first

conviction; not less than two hundred fifty dollars ($250.00) for the second such conviction; and not more than five hundred dollars ($500.00) for any subsequent conviction.

G. Enforcement.

1. The Department may engage in activities calculated to measure and ensure compliance with the provisions of this section. Private organizations and individuals, as may be designated by the Department, may engage in such to measure and ensure compliance with the provisions of this section when such activity is authorized and approved by the Department.

2. The authority to enforce the provisions of [this] chapter is vested in the Department and in the St. Louis Metropolitan Police Department.

3. The Department may choose to utilize the provisions of Chapter 11.95 for administrative citations to enforce the provisions of this section.

4. Persons under the age of twenty-one (21) years old may be enlisted to test compliance with the provisions of this section; provided, however, that juveniles who are under the age of 18 years old may be used to test compliance only if written consent of such person's natural or adoptive parent of a juvenile, any person having legal custody of a juvenile, or an adult who has assumed responsible custody or control of a juvenile is on file with the Department and only under the auspices of the Department. (1994 C., § 11.32.110; Ord. No. 70399, § 1, 11-23-2016.)

Editor's Note:

Ord. No. 70399, § 1, adopted November 23, 2016, amended the Code by repealing former §§ 11.32.110—11.32.140, and adding new §§ 11.32.110 and 11.32.120. Former § 11.32.110 pertained to similar subject matter, and derived from Ord. No. 64840 of 1999. Former §§ 11.32.120—11.32.140 pertained to prohibition of vending tobacco products without a sign, prohibitions of smoking in school building and day care centers, and exemptions, respectively; and derived from Ord. No. 62423 of 1991.

11.32.120 Prohibition of Selling, Distributing or Vending Without a Sign.

A. It shall be unlawful for any person to sell, distribute or vend, or permit the sale, distribution or vending of tobacco products, on premises he owns or leases unless the premises upon which such items are sold, distributed or vended prominently displays a sign which shall contain in red capital lettering at least one-half inch high on white background, and spaced so the sign is clear and readable: IT IS A VIOLATION OF THE LAW FOR TOBACCO PRODUCTS TO BE SOLD OR DISTRIBUTED TO ANY PERSON UNDER THE AGE OF TWENTY-ONE (21).

B. Penalties. Any person who is determined to have violated any provision of this section shall be fined not less than one hundred dollars ($100.00) for the first conviction; not less than two hundred fifty dollars ($250.00) for the second conviction, and five hundred dollars ($500.00) each subsequent conviction discretion may impose an equivalent combination of fine and community service.

C. Enforcement.

1. The Department may engage in activities calculated to measure and ensure compliance with the provisions of this section. Private organizations and individuals, as may be designated by the Department may engage in such activities to measure and ensure compliance with the provisions of this section when such activity is authorized and approved by the Department.

2. The authority to enforce the provisions of this section is vested in the Department and in the St. Louis Metropolitan Police Department.

3. The Department may choose to utilize the provisions of Chapter 11.95 for administrative citations to enforce the provisions of this section. (1994 C., § 11.32.120; Ord. No. 70399, § 1, 11-23-2016.)

Note—See editor's note, § 11.32.110.

11.32.130, 11.32.140 Reserved.

Note—See editor's note, § 11.32.110.

11.32.150 Definitions.

A. "Day care center" shall include the entirety of any house or other building in any part of which care is provided for any part of the twenty-four-hour day for five or more children who do not live on the premises, including, but not limited to, all day care homes licensed under Chapter 26.08.170;

B. "School building" shall include the entirety of any building in any part of which student education or school-sponsored student recreation, assembly or activity takes place;

C. "Tobacco" shall include, but not be limited to, cigars, cigarettes, pipe tobacco and smokeless tobacco or tobacco products that are suitable for dipping or chewing. (1994 C., § 11.32.150; Ord. No. 62423, § 6, 1991.)

11.32.160 Penalty for violation.

A. Every person who shall be convicted of any violation of the provisions of this chapter shall be fined not less than Fifty ($50.00) Dollars nor more than One Hundred ($100.00) Dollars.

B. For any subsequent conviction of this chapter the judge shall require a fine of not less than $100.00. (1994 C., § 11.32.160; Ord. No. 62423, § 7, 1991.)

11.32.170 Community service.

The judge may in lieu of fine impose no less than 40 hours' community service for persons convicted of a violation of Section 11.32.110.B of this chapter. (1994 C., § 11.32.170; Ord. No. 62423, § 8, 1991.)

Chapter 11.33

CONDUCT ON PUBLIC TRANSPORTATION

McQuillin:

24.239 Cigarettes and tobacco

Prior code history: 1948 C. Ch. 46 § 71; 1960 C. 792, Ord. 58128

Sections:

11.33.010 Definitions.
11.33.020 Interpretation—Application.
11.33.030 Prohibited acts.
11.33.040 Penalty for violation.

11.33.010 Definitions.

As used in this chapter, the following terms have the following meanings:

A. "Agency" means the Bi-State Development Agency created by compact under RSMo 70.370.

B. "Conveyance" means and includes bus, paratransit vehicle, rapid transit car or train, locomotive, light rail vehicle, rail vehicle, or other vehicle used or held for use by the Agency as a means of transportation of passengers.

C. "Facilities" means and includes all property and equipment, including, without limitation, rights-of-way and related trackage, rails, signals, power, fuel, communication and ventilation systems, power plants, stations, terminals, signage, storage yards, depots, repair and maintenance shops, yards, offices, parking lots and other real estate or personal property used or held by the Agency for or incidental to the operation, rehabilitation or improvement of the public mass transportation system of the Agency.

D. "Fare Media" means and includes any token, badge, ticket, coin, document, pass, transfer or card used to gain entry to the facilities or conveyances of, or make use of the services, of the Agency.

E. "Person" means and includes any individual, firm, copartnership, corporation, association or company.

F. "Sound production device" means and includes, but is not limited to, any radio receiver, phonograph, television receiver, musical instrument, tape recorder, compact disk player, cassette player, speaker device and any sound amplifier. (1994 C., § 11.33.010; Ord. No. 62971, § 2(a), 1993.)

11.33.020 Interpretation—Application.

In interpreting or applying this chapter, the following provisions shall apply:

A. Any act otherwise prohibited by this chapter is lawful if performed by an officer, employee or designated agent of the Agency acting within the scope of his or her employment or agency.

B. The singular shall mean and include the plural; the masculine gender shall mean and include the feminine and the neuter genders; and vice versa. (1994 C., § 11.33.020; Ord. No. 62971, § 2(b), 1993.)

11.33.030 Prohibited acts.

The following acts are prohibited to the extent provided in this section:

A. No person shall use or enter upon any conveyance of the Agency without payment of the fare or other lawful charges established by the Agency. Any person on any light rail conveyance must have valid proof of payment in his possession. This proof of payment must be valid to or from the station the passenger is using, and must have been used for entry for the trip then being taken.

B. No person shall use any fare media to gain entry to the facilities or conveyances of, or make use of the services of the Agency, except as provided, authorized or sold by the Agency and in accordance with any restriction on the use thereof imposed by the Agency.

C. No person shall enter in a vehicle or park upon parking lots designated by the Agency as requiring payment to enter or park, either by electronic gate or parking meters, where the cost of such parking fee is visibly displayed at each location, without payment of such fees or other lawful charges established by the Agency.

D. No person shall sell, provide, copy, reproduce or produce, or create any version of any fare media.

E. No person shall put or attempt to put any paper, article, instrument or item, other than fare media issued by the Agency and valid for the place, time and manner in which used, into any fare box, pass reader, ticket vending machine, parking meter, parking gate or other fare collection instrument, receptacle, device, machine or location.

F. No person shall perform any act which interferes with the provision of transit service or obstructs the flow of traffic on facilities or conveyances or which would in any way interfere or tend to interfere with the safe and efficient operation of the facilities or conveyances of the Agency.

G. All persons on or in any facility or conveyance of the Agency shall obey any instructions on notices or signs duly posted on such facility or conveyance.

H. No person shall falsely represent himself or herself as an agent, employee or representative of the Agency.

I. No person on or in any facility or conveyance shall:

1. Litter, dump garbage, liquids or other matter, or create a nuisance, hazard or unsanitary condition, including, but not limited to, spitting and urinating, except in facilities provided and designated for such acts by the Agency;

2. Drink any alcoholic beverage or possess any opened or unsealed container of alcoholic beverage, except on premises duly licensed for the sale of alcoholic beverages, such as bars and restaurants;

3. Enter or remain in any facility or conveyance while his ability to function safely in the environment of the Agency transit system is impaired by the consumption of alcohol or any drug;

4. Consume foods or liquids of any kind, except in those areas specifically authorized for such acts by the Agency;

5. Smoke or carry an open flame or lighted match, cigar, cigarette, pipe or torch, except in those areas or locations specifically authorized for such acts by the Agency;

6. Throw or cause to be propelled any stone, projectile or other article at, from, upon or in a facility or conveyance;

7. Create any unreasonable noise through the use of any sound production device. Use of radios and other devices listened to solely by headphones or earphones and inaudible to others is permitted;

8. Interfere with any lamp, electric light, or electric fixture;

9. Destroy, mark, soil or paint, or draw, inscribe, write, spray paint or place graffiti upon, or remove, injure or tamper with any facility, conveyance, sign, advertisement or notice of the Agency or authorized by the Agency.

J. No weapon or other instrument intended for use as a weapon may be carried in or on any facility or conveyance, except by law enforcement personnel. For the purposes hereof, a weapon shall include, but not be limited to, a firearm, switchblade knife, sword, or any instrument of any kind known as blackjack, billy club, club, sandbag, metal knuckles, leather bands studded with metal, wood impregnated with metal filings or razor blades; except that this subsection shall not apply to a rifle or shotgun which is unloaded and carried in any enclosed case, box or other container which completely conceals the item from view and identification as a weapon.

K. No explosives, flammable liquids, acids, fireworks or other highly combustible materials or radioactive materials, may be carried on or in any facility or conveyance.

L. No person, except as specifically authorized by the Agency, shall enter or attempt to enter into any area of a facility or conveyance not open to the public, including, but not limited to, train operator's cabs, conductor's cabs, bus operator's seat location, closed-off areas, mechanical or equipment rooms, concession stands, storage areas, interior rooms, tracks, roadbeds, tunnels, plants, shops, barns, train yards, garages, or any area marked with a sign restricting access or indicating a dangerous environment.

M. No person may ride on the roof, the coupler between light rail vehicles, or on any other exterior area of any light rail vehicle or bus or other conveyance operated by the Agency.

N. No person shall extend any part of his person or any item, article or other substance outside of the window or door of a moving conveyance operated by the Agency.

O. No person shall enter or leave a conveyance operated by the Agency except through the entrances and exits provided for that purpose.

P. No animals may be taken on or into any conveyance or facility except the following:

1. An animal enclosed in a container, accompanied by a passenger and carried in a manner which does not annoy other passengers; and

2. Working dogs for law enforcement agencies, agency dogs on duty, dogs properly harnessed and accompanying blind or hearing-impaired persons to aid such persons, or dogs accompanying trainers carrying a certificate of identification issued by a dog school.

Q. Bicycles are prohibited on conveyances, except when specifically authorized by permit of the Agency.

R. No vehicle shall be operated carelessly, or negligently, or in disregard of the rights or safety of others or without due caution and circumspection, or in such a manner as to be likely to endanger persons or property, on facilities of the Agency. The speed limit on parking lots and access roads shall be posted as fifteen miles per hour unless otherwise designated. (1994 C., § 11.33.030; Ord. No. 62971, § 3, 1993.)

11.33.040 Penalty for violation.

Any person committing a violation of this chapter shall be subject to arrest and, upon conviction in a court of competent jurisdiction, shall pay a fine in an amount not less than twenty-five dollars ($25.00) and no greater than two hundred fifty dollars ($250.00) per violation. (1994 C., § 11.33.040; Ord. No. 62971, § 4, 1993.)

Chapter 11.34

AIR POLLUTION

Editor's Note:

Ord. No. 71332, § 1, adopted April 19, 2021, amended the Code by repealing former Ch. 11.34, §§ 11.34.010—11.34.060, 11.34.080—11.34.130, 11.34.150, 11.34.200—11.34.220, and 11.34.240—11.34.260; and §§ 2—28 of said ordinance added a new Ch. 11.34. Former Ch. 11.34 pertained to similar subject matter, and derived from Ord. No. 68657, adopted June 2, 2010; Ord. No. 70607, adopted June 19, 2017; and Ord. No. 71146, adopted May 7, 2020.

Prior history: Ords. 41173, 41586, 42111, 45229, 54699, 50163, 55100, 55923, 58040, 59270, 60023, 60629, 60736, 61095, 64749, 65108, 65645, 65945, 68137, 68657, 70607, 71146; 1960 C. §§ 384.010 through 384.080, 385.010 through 385.160, 386.010 through 386.160, 387.010 through 387.110

City Counselor Ops.: 8757, 10090, 10242

Sections:

11.34.010 Name.

11.34.020 Policy statement.

11.34.030 Statement of delegated authority.

11.34.040 Continuation of existing actions.

11.34.050 Definitions.

11.34.060 Powers and duties.

11.34.070 Variances.

11.34.080 Commissioner to approve certain alteration, renovation, demolition, and occupancy applications.

11.34.090 Source-specific emergency procedures.

11.34.100 Asbestos.

11.34.110 Air pollution nuisance prohibited.

11.34.120 Motor vehicle idling prohibited.

11.34.130 Open burning restrictions.

11.34.140 Right of inspection, disclosure, and submittal of requested information.

11.34.150 Cooperation of local governmental agencies required.

11.34.160 Enforcement.

11.34.170 Fee schedule.

11.34.180 Penalty clause.

11.34.010 Name.

This chapter shall be known and may be cited as "Teresa's Law" and/or "The Teresa Page Air Pollution Control Ordinance," an ordinance for regulation and control of air pollution within the City of St. Louis. (Ord. No. 71332, § 2, 4-19-2021.)

11.34.020 Policy statement.

It is hereby declared to be the public policy of the City of St. Louis, for the Department of Health, Air Pollution Control Program, to preserve, protect and improve the air resources of this City, so as to promote health, safety, and welfare; prevent injury to human health, plant and animal life, and property; foster the comfort and convenience of its inhabitants and, to the greatest degree practicable, facilitate the enjoyment of the attractions of the City by residents and visitors. (Ord. No. 71332, § 3, 4-19-2021.)

11.34.030 Statement of delegated authority.

Be it hereby known that the Commissioner of Health has authority to act in the following manner:

A. As identified in the sections of this chapter, which is designated by the term, "The Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health."

B. In addition to the requirements contained within the sections of this chapter be it hereby known that:

The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, Department of Natural Resources, Division of Environmental Quality, Air Pollution Control Program, under authority contained within the Air Conservation Law and granted by the Missouri Air Conservation Commission and conditions contained within the State/Local Agreement, which is designated by the term, "The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri," may as delegated by the Missouri Department of Natural Resources, enforce any provision of State Air Conservation Law, or specific rules contained within Chapters 5 and 6 of Division 10 of Title 10 of the Code of State Regulations, and, as described herein, approve construction and alteration plans as well as occupancy and demolition applications.

C. The Building Commissioner shall not issue a permit for the demolition, construction, reconstruction, alteration, or occupancy of any building, structure, or business, unless the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health has reviewed applications to which this chapter might apply, and has given approval in writing. No permit shall issue until the prerequisites for asbestos abatement procedures and practices are met and certified under penalty of perjury, including but not limited to necessary current certifications and licenses, and posted for five (5) days with the Commissioner of Health in a manner prominently accessible and searchable on the Commissioner of Health's website.

(Ord. No. 71332, § 4, 4-19-2021.)

11.34.040 Continuation of existing actions.

The repeal of any ordinance or portion thereof by this chapter shall not affect or impair any act done, or right vested or accrued, or any proceeding suit or prosecution, had or commenced in any cause before such repeal takes effect; but every such act done, or right vested, or accrued, or proceeding suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes, as if such ordinance or part thereof so repealed had remained in force. No offense committed and no liability, penalty, or forfeiture, either civilly, or criminally incurred prior to the time when any such ordinance, or part thereof shall be repealed or altered by this chapter, shall be discharged or affected by such repeal or alteration; but prosecutions and suits for such offenses, liabilities, penalties, or forfeitures shall be instituted and proceeded within all respects as if such prior ordinances or part thereof had not been repealed or altered.

(Ord. No. 71332, § 5, 4-19-2021.)

11.34.050 Definitions.

This section defines key words and expressions used in this chapter. The following definitions are in addition to those contained in State Rule 10 CSR 10-6.020, as amended.

1. "Abandon" shall mean the cessation of the use of the equipment, machines, devices, articles, contrivances or facility for a period in excess of one year. If this definition runs contrary to State Rule 10 CSR 10-6.060, as amended, on permitting decisions affected by that rule, the State Rule will take preference.

2. "Adjoining." Contiguous, lying next to, or in contact with.

3. "Air pollution abatement operation." Any operation which has as its essential purpose a significant reduction in the emission of air contaminants or the effect of such emission.

4. "Ash." The incombustible solid matter in coal, wood, oil, refuse or other fuel.

5. "BTU." British Thermal Unit(s).

6. "CFR." Code of Federal Regulations.

7. "CSR." Code of State Regulations.

8. "The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri." The Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health operating as delegated agents of the State of Missouri, Department of Natural Resources, Division of Environmental Quality, Air Pollution Control Program, under authority contained within the Air Conservation Law and granted by the Missouri Air Conservation Commission and conditions contained within the State/Local Agreement, may enforce any provision of State Air Conservation Law so delegated, or specific rules contained within Chapters 5 and 6 of Division 10 of Title 10 of the Code of State Regulations.

9. "The Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health." The Commissioner of Health and/or his or her designee within the City of St. Louis Department

of Health operating under provisions of the City Charter, the sections of this chapter, and any ordinance of St. Louis City applying to this chapter.

10. "Inadequate dispersion" shall pertain to the visible plume from any exhaust stack, duct, vent, impinging upon adjoining property in such a manner that it directly affects or has the potential as determined by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, to adversely affect the health or well-being of individuals on adjoining property.

11. "Open burning." The burning of any matter in such manner that the products of combustion resulting from the burning are emitted directly into the ambient air without passing through an approved stack, duct, vent or chimney.

12. "Performance based cost." The total direct and indirect resources allocated to provide services within the Commissioner's Office.

13. "Plume." A sensory detectable column or band of smoke and/or odors.

14. "Premises." Land, improvements, or the ambient air above such land or improvements.

15. "Reasonable time." A period of time to be determined by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, after reviewing all pertinent information, which does not cause undue harm to any concerned persons constrained by said time frame.

16. "Refuse." Any combustible waste material containing carbon in a free or combined state, other than liquids or gases.

17. "Salvage operation." Any business, trade, industry or other activity conducted in whole or in part for the purpose of salvaging or reclaiming any product or material including but not limited to metals or chemicals.

18. "Sensory detectable." The level at which an air contaminant can be perceived by the sense of sight or smell.

19. "Significant number." This shall be a number determined by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, based on a case by case basis of those individuals affected by an alleged violating facility, and taking into consideration such facts as geography, population density, location, and any other relevant data.

20. "St. Louis Air Quality Control Region." The geographical area composed of St. Louis, St. Charles, Jefferson and Franklin Counties and the City of St. Louis in Missouri, and St. Clair, Madison, and Monroe Counties in Illinois including any counties added herein by federal and/or state government.

21. "Uncombined water." The visible condensed water which is not bound, physically or chemically, to any air contaminant.

22. "Vegetation." Any representative of the plant kingdom including but not limited to trees, shrubs, grasses, or vegetables, and any anatomical part of these plants including but not limited to leaves, stems, roots, flowers or fruits.

(Ord. No. 71332, § 6, 4-19-2021.)

11.34.060 Powers and duties.

In addition to any other powers vested in the Commissioner by law, the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health operating as delegated agents of the State of Missouri, Department of Natural Resources, Division of Environmental Quality, Air Pollution Control Program, under authority contained within the Air Conservation Law and granted by the Missouri Air Conservation Commission and conditions contained within the State/Local Agreement, may enforce any provision of State Air Conservation Law so delegated, or specific rules contained within Chapters 5 and 6 of Division 10 of Title 10 of the Code of State Regulations, shall have power to:

A. Exercise general supervision over the Air Pollution Control Program, and have charge of the enforcement of all ordinances or regulations pertaining to air pollution control and air quality maintenance and initiate prosecutions for the violations thereof.

B. Investigate complaints of air pollution and air quality maintenance, and make inspections and observations of air pollution conditions within the City.

C. Hold hearings related to any aspects of, or matters in the administration of this chapter.

D. Issue such orders as may be necessary to implement the purposes of this chapter, including but not limited to orders of abatement, stop work orders, and sealing orders. If deemed necessary, can order the facility to set up monitoring and testing at specific locations and enforce the same by all appropriate administrative and judicial proceedings.

E. Secure necessary scientific, technical, administrative, and operational supplies, materials, equipment and/or services, by contract or otherwise.

F. Prepare and develop a comprehensive plan or plans for the prevention, abatement, and control of air pollution.

G. Encourage voluntary cooperation by persons or affected groups to achieve the purposes of this chapter.

H. Encourage and conduct studies, investigations and research, relating to air pollution and its prevention, abatement, and control.

I. Collect and disseminate information and conduct educational and training programs relating to air pollution.

J. Advise, consult, and cooperate with other local governmental units, agencies of the state, industries, interstate or regional agencies, and the federal government, and with interested persons and groups.

K. Appoint such engineers, specialists, technicians, inspectors, stenographers, clerks, and other employees that shall be necessary to perform the duties of the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri. Such appointments shall be made in accordance with the provisions of the Charter and Ordinances of the City.

L. Accept, receive, and administer grants or other funds or gifts from public and private agencies.

M. Designate testing methods when a particular method is not specified by this chapter from among standards of widely recognized methods, including but not limited to methods of the ASTM, ASME, United States Environmental Protection Agency, and any recognized professional publications.

N. Take all possible action to secure a high standard of air quality throughout the entire St. Louis Metropolitan area which action may include promotion of the passage and enforcement of air pollution control laws in other political subdivisions.

O. Whenever the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may find that sufficient progress is not being made toward abatement or control of a significant source or sources of air pollution located within that portion of the Air Quality Control Region, with the approval of the Director of Health and the Mayor, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, shall institute efforts to persuade the Governor of the State of Missouri, or the Missouri Air Conservation Commission, to register a formal complaint with the appropriate federal agency as provided by the laws of the United States.

P. Have a duty with the approval of the Mayor, to initiate or intervene in proceedings before the Missouri Air Conservation Commission, in order to attain standards of air pollution control throughout the Missouri portion of the Air Quality Control Region, which shall be as comprehensive and as restrictive as those created by this chapter.

Q. Unless specifically prohibited by law, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may designate department representatives to carry out any or all of these powers and duties.

R. The Department of Health is encouraged and authorized to carry out these powers and duties of the ordinance set forth herein.

(Ord. No. 71332, § 7, 4-19-2021.)

11.34.070 Variances.

A. Any person or organization who owns or is in control of any plant, building, structure, process, or equipment may submit a petition to the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, for a variance from this chapter governing the quality, nature, duration or extent of discharges of air pollutants. The petition shall be accompanied by a fee of fifty dollars ($50.00) and shall include the following information:

1. The name, address, and telephone number of the petitioner, or other person authorized to receive service of notices;

2. The type of business or activity involved in the application and the street address at which it is conducted;

3. A complete comprehensive description of the article, machine, equipment or other contrivance, or process involved in the application and the emissions occurring therefrom;

4. A petition signed by the petitioner or by some person on the petitioner's behalf, and where the person signing is not the petitioner, it shall set forth his authority to sign;

5. The section, rule or order from which a variance is sought;

6. The facts showing why compliance with the section, rule or order is unreasonable;

7. For what period of time the variance is sought and why;

8. The damage or harm resulting or which would result to petitioner from compliance with such section, rule or order;

9. The requirements which petitioner can meet and the date when petitioner can comply with such requirements including the emissions which will result;

10. The advantages and disadvantages to the residents of the City resulting from requiring compliance or resulting from granting a variance;

11. Whether operations under such variance, if granted, would constitute a nuisance as defined in Section 11.34.110 of this chapter;

12. Whether any case involving the same identical equipment or process is pending in any court, civil or criminal;

13. Whether the subject equipment or process is covered by a permit issued by the Commissioner and/or his or her designee; and

14. Such other information and data required by rule or regulation of the Commissioner of Health and/or his or her designee enacted in conformity with the terms, conditions, and limitations of this chapter.

B. The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, shall promptly investigate such petition.

C. The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may grant such variance if he/she finds that:

1. The emission occurring or proposed to occur, does not constitute a hazard to public health or safety; and

2. Compliance with the terms and limitations of this chapter from which variance is sought would result in an arbitrary and unreasonable taking of property, or in the practical closing and eliminating of any lawful business, occupation or activity, in either case without sufficient corresponding benefit or advantage to the people.

D. No variance shall be granted pursuant to this section until the Commissioner or his or her designee operating as delegated agents of the State of Missouri, has considered the relative interests of the applicant, other owners of property likely to be affected by the discharges, and the general public.

1. Notification will be given to the Missouri Department of Natural Resources Air Pollution Control as required by RSMO 643.140 of any variance granted by the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health and will include copies of all relevant materials.

2. No violation of City ordinance or state regulation will be allowed to continue during an appeal from the requirements of that ordinance or regulation.

E. Variances may be granted for such period of time and under such terms and conditions as shall be specified by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri. Variances may be reviewed by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, upon application made at least thirty (30) days prior to the expiration of the term. Renewal application shall be considered in the same manner as the initial petition for variance was considered by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri.

F. A variance or renewal thereof shall not be a vested right of the applicant or holder thereof.

(Ord. No. 71332, § 8, 4-19-2021.)

11.34.080 Commissioner to approve certain alteration, renovation, demolition, and occupancy applications.

The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, shall approve renovation, demolition, and occupancy applications. No renovation, demolition, and/or occupancy application shall be granted until the Commissioner of Health and/or his or her designee asbestos air sampling professional and inspector have tested the facility as the Commissioner of Health deems appropriately necessary for asbestos abatement to competently take place so as to reduce surprise to the extent possible, and make public the test(s)' findings and results that are necessary to the relevant asbestos abatement contractors to bid for the project. Renovation and demolition terms are used as defined in 11.34.100. The Building Commissioner shall not issue a permit for the demolition, certain alterations that meet the definition of renovation, or occupancy of any building, structure, or business, unless the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health has been given opportunity to review applications to which this chapter might apply, and has given approval.

(Ord. No. 71332, § 9, 4-19-2021.)

11.34.090 Source-specific emergency procedures.

Notwithstanding the provisions of this chapter, or any other provisions of law to the contrary, and without necessity of prior administrative procedures or hearings, or at any time during such proceedings, if the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, after investigation, is of the opinion that any person is discharging or causing to be discharged into the atmosphere any air contaminant, and if the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, determines that the discharge under the atmospheric conditions then prevailing, creates a hazardous emergency which requires immediate action to prevent serious damage to the public health, safety or welfare, and that it therefore appears to be prejudicial to the interests of the people of the City to delay action, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, with the written approval of the Mayor, shall order the person responsible for the emission, in writing, to discontinue immediately the discharge of the contaminants into the atmosphere, whereupon the person shall immediately discontinue the discharge.

In the event that there is a failure to comply with the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, order, then all affected departments of the City government shall take immediate action necessary to protect and preserve the health, safety and welfare of the public. The City Counselor shall be empowered to immediately seek in the Circuit Court or U. S. District Court equitable relief to immediately halt the further emission of the air contaminants.
(Ord. No. 71332, § 10, 4-19-2021.)

11.34.100 Asbestos.

A. *Asbestos definitions.* For purposes of this chapter the following words and definitions shall apply:

1. "Adequately wet." Sufficiently mix or penetrate with liquid to prevent the release of particles. If visible emissions are observed coming from asbestos-containing material, then that material has not been adequately wetted. However, the absence of visible emissions is not sufficient evidence of being adequately wet.

2. "Air Pollution Control (APC)." Air Pollution Control of the City of St. Louis Department of Health.

3. "Air sampling personnel." No one employed by an owner or operator of a demolition or renovation activity, or person, partnership, or corporation performing or managing the demolition, construction, reconstruction, alteration, or occupancy on or at the site, or by or with a person, partnership, or corporation that shares a same, in whole or in party, ownership or control group will be considered air sampling personnel.

a. "Asbestos air sampling professional." An individual who by qualifications and experience is proficient in asbestos abatement air monitoring. The individual shall conduct, oversee, or be responsible for air monitoring of asbestos projects before, during and after the project has been completed, and is certified in accordance with 10 CSR 10-6.250. An asbestos air sampling professional is an individual with a current certificate of successful completion of the NIOSH course #582e "Sampling and Evaluating Airborne Asbestos Dust" or a course equivalent in length and content together with one (1) of the following; a) a Bachelor's Degree in the life, environmental or physical sciences or in engineering and written verification of five hundred twenty (520) hours on-site experience in general indoor air pollution sampling; or b) written verification of two thousand eighty (2080) hours on-site experience in air sampling for asbestos on abatement projects under the supervision of a licensed air sampling professional.

b. "Asbestos air sampling technician." An individual who has been trained by an air sampling professional, and certified in accordance with 10 CSR 10-6.250, to perform air monitoring. That certification in the City of St. Louis requires that the individual must have evidence of working under an air sampling professional in the field for at least forty (40) hours and, if analyzing air samples, have successfully completed a NIOSH 582e course. The air sampling technician may conduct air monitoring of an asbestos project before, during and after the asbestos project has been completed.

4. "Asbestos." The asbestiform varieties of chrysotile, crocidolite, amosite, anthophyllite, tremolite and actinolite.

5. "Asbestos abatement." The encapsulation, enclosure or removal of asbestos-containing materials, in or from a building, or air contaminant source; or preparation of regulated asbestos-containing material prior to demolition.

6. "Asbestos abatement contractor." Any person, registered with the Missouri Department of Natural

Resources (MODNR), who by agreement, contractual or otherwise, conducts asbestos abatement projects or asbestos projects at a location other than his/her own place of business. An asbestos abatement contractor and contractor's personnel must have current applicable certifications and licenses including OSHA ten-hour construction standard training, Asbestos Hazard Emergency Response Act (AHERA), Asbestos School Hazard Abatement Reauthorization Act (ASHARA).

7. "Asbestos abatement project." An activity undertaken to encapsulate, enclose, or remove ten (10) square feet and/or sixteen (16) linear feet and/or three (3) cubic feet or more of regulated asbestos containing materials from buildings, structures, and other air contaminant sources containing ten (10) square feet and/or sixteen (16) linear feet and/or three (3) cubic feet or more.

8. "Asbestos abatement supervisor." An individual, certified by MODNR, who directs, controls or supervises others in asbestos abatement projects and asbestos projects.

9. "Asbestos-containing material (ACM)." Any material or product which contains more than one (1) percent asbestos in accordance with 40 CFR 9 61.141.

10. "Asbestos project." An activity undertaken to remove, enclose, or encapsulate at least one hundred sixty (160) square feet, two hundred sixty (260) linear feet, or thirty-five (35) cubic feet or more of regulated asbestos containing materials (RACM) from buildings, structures, and other air contaminant sources, or to demolish buildings, structures, and other air contaminant sources containing the previously mentioned quantities of asbestos-containing materials.

11. "Asbestos removal project." An asbestos abatement project consisting of activities that involve, and are required, to take out regulated asbestos-containing materials from any facility. This definition includes, but is not limited to, activities associated with the cleanup of loose friable asbestos-containing debris or refuse, or both, from floors and other surfaces.

12. "Building." Any structure excluding single-family, owner-occupied dwellings, and vacant public or privately-owned residential structures of four (4) dwelling units or less being demolished for the sole purpose of public health, safety, or welfare. Excluded structures must be geographically dispersed, demolished pursuant to a public safety determination, and must pose a threat to public safety.

13. "Category I non-friable asbestos-containing material (ACM)." Asbestos-containing packing, gaskets, resilient floor covering, and asphalt roofing products containing more than one (1) percent asbestos in accordance with 40 CFR 61.141.

14. "Category II non-friable ACM." Any material, excluding Category l non-friable ACM, containing more than one (1) percent asbestos, in accordance with 40 CFR 61.141, that when dry, cannot be crumbled, pulverized, or reduced to powder by hand pressure.

15. "Commercial or public project." The demolition of one or more houses as part of an urban renewal project, a highway construction project, or a project to develop a shopping mall, industrial facility, or other private development.

16. "Containment." The area where an asbestos abatement project or asbestos project is conducted. The area must be enclosed either by a glove bag or plastic sheeting barriers.

17. "Demolition." The wrecking, razing, intentional burning or removing of any load-supporting structural member or portion of a structure together with any related handling operation.

18. "Emergency asbestos abatement project." An asbestos abatement project or asbestos project that must be undertaken immediately to prevent imminent severe human exposure or to restore essential facility operation.

19. "Facility." Any institutional, commercial, public, industrial, or residential structure, installation, or building (including any structure, installation, or building containing condominiums or individual dwelling units operated as a residential cooperative, but excluding individual residential buildings having four (4) or fewer dwelling units that do not meet the requirement of an installation and are not part of a commercial or public project); any ship; and any active or inactive waste disposal site. For purposes of this definition, any building, structure, or installation that contains a loft used as a dwelling is not considered a residential structure, installation, or building. Any structure, installation or building that was previously subject to this Section is not excluded, regardless of its current use or function.

20. "Friable ACM." Any material containing more than one (1) percent asbestos in accordance with 40 CFR 61.141, that when dry can be crumbled, pulverized, or reduced to powder by hand pressure.

21. "Glove bag." A manufactured or fabricated device, typically constructed of six (6) mil transparent polyethylene or polyvinyl chloride plastic. This device consists of two (2) inward projecting long sleeves, an internal tool pouch and an attached, labeled receptacle for asbestos waste. The bags are especially designed to contain sections of pipe for the purpose of removing a short length of damaged asbestos containing material without releasing fibers into the air.

22. "Installation." Any building or structure or multiple (more than one (1)) buildings or structures at a single demolition or renovation site under the control of the same owner or operator (or owner or operator under common control) that is demolished or renovated within a twelve-month period.

23. "Inspector." An individual, certified by MODNR, under the U.S. Asbestos Hazard Emergency Response Act (AHERA), who collects and assimilates information used to determine whether asbestos-containing material is present in a building or other air contaminant sources.

24. "Leak-tight." Solids or liquids cannot escape or spill out. It also means dust-tight.

25. "MODNR." Missouri Department of Natural Resources.

26. "Non-friable ACM." Any material containing more than one (1) percent asbestos in accordance with 40 CFR 61.141, that when dry, cannot be crumbled, pulverized, or reduced to powder by hand pressure.

27. "Owner or operator of a demolition or renovation activity." Any person, who owns, leases, operates, controls, or supervises a facility, structure, building, or installation being demolished or renovated, or any person who owns, leases, operates, controls, or supervises a demolition or renovation operation, or both.

28. "Regulated asbestos-containing material (RACM)." (a) friable asbestos containing material; (b) category I non-friable ACM that has become friable; (c) category I non-friable ACM that will be or has been subjected to sanding, grinding, cutting, or abrading; or (d) Category II non-friable ACM that has a high probability of becoming or has become crumbled, pulverized, or reduced to powder by the forces expected to act on the material in the course of demolition or renovation operations regulated by this rule.

29. "Renovation." Altering a facility or one or more facility components in any way, including the stripping or removal of RACM from a facility component. Operations in which load-supporting structural members are wrecked or taken out are demolitions.

30. "Site." A site is generally expected to be a city block.

31. "Structure." Any built element, including single-family, owner-occupied dwellings, and vacant public or privately-owned residential structures of four (4) or fewer dwelling units.

B. *Application.* This rule shall apply to:

1. All persons that authorize, design, conduct and work in asbestos abatement projects, asbestos projects, and asbestos removal projects;

2. All persons (other than City employees) that monitor airborne asbestos or dispose of asbestos waste as a result of asbestos abatement projects;

3. All persons who inspect buildings to determine the presence or absence of ACM;

4. All owners or operators of a demolition or renovation activity; and

5. Business entities that qualify for exemption status under 10 CSR 10-6.250 are not subject to the notification requirements for asbestos abatement projects of a size less than one hundred sixty (160) square feet, two hundred sixty (260) linear feet, or thirty-five (35) cubic feet. These business entities are exempt from post-notification requirements, but shall keep records of waste disposal for department inspection.

C. *Asbestos Abatement Procedures and Practices.*

1. All asbestos abatement contractors prior to engaging in asbestos abatement projects, asbestos projects, and asbestos removal projects shall:

a. Use only those individuals that are certified or trained in accordance with sections 10 CSR 643.250 of the Revised Statutes of Missouri, and

b. Comply with Asbestos, United States Environmental Protection Agency National Emission Standards for Hazardous Air Pollutants (NESHAP) 40 CFR Part 61; Asbestos Hazard Emergency Response Act (AHERA) 40 CFR Part 763; the standards for worker protection promulgated by the United States Occupational Safety and Health Administration (OSHA) at 29 CFR 1910.1001, 1910.1200, 1926.58; the provisions of RSMo 643.40 to 643.250; the ordinances of the City; and rules and regulations and orders of the Commissioner of Health and/or his or her designee by and for the implementation of this chapter.

c. Any asbestos abatement contractor performing work on a project with a total budget of one hundred

twenty-five thousand dollars ($125,000.00) or more must participate in a U.S. Department of Labor registered apprentice program compliant with 29 CFR Part 29 and 29 USC Section 50 that yearly graduates registered apprentices and teaches practices and safety techniques used in asbestos abatement. This requirement does not apply to an excepted "building" or "facility" excluded from those terms' definitions above.

2. At each asbestos abatement project, asbestos project, and asbestos removal project site, the person shall provide the following information for inspection by APC, which shall be current and on record with the Commissioner of Health in a manner prominently accessible and searchable on the Commissioner of Health's website:

a. Proof of current MODNR registration;

b. Proof of current MODNR occupational certification for those individuals on the project;

c. Most recent available air sampling results;

d. Current photo identification for all applicable individuals engaged in the project; and

e. Proof of passage of the training course for the air sampling technicians and photo identifications for air sampling technicians.

D. *Notification Requirements.*

1. Any person undertaking a demolition project, asbestos abatement project, asbestos project, or asbestos removal project shall submit a notification to APC for review by web portal, in person, by email, or by fax at least ten (10) working days prior to the start of the project.

a. Business entities with MODNR -approved exemption status are exempt from notification except for those projects for which notification is required by the EPA's NESHAP.

b. APC may waive the ten (10) working day review period upon request for good cause. To apply for this waiver, the person shall complete the appropriate sections of the notification form provided by APC. The person who applies for the ten (10) working day waiver must obtain approval from APC before the project can begin.

2. The person shall submit the notification form provided by APC.

3. If an amendment to the notification is necessary, the person shall notify APC immediately by web portal, telephone, email, or fax. APC must receive the written amendment within five (5) working days following the verbal or fax agreement.

4. All notifications shall state actual dates and times of the project, the on-site asbestos abatement supervisor and a description of work practices. If the person must revise the dates and times of the project, the person shall notify the APC office at least twenty-four (24) hours in advance of the change by web portal, telephone, email, or fax and then immediately follow-up with a written amendment stating the change. APC must receive the written amendment for changes in dates and times of the project within two (2) working days of the phone or fax message.

5. An inspector shall thoroughly inspect the structure, building, or facility or part of the facility where the demolition or renovation operation will occur for the presence of asbestos, including Category I and Category II non-friable ACM. This includes garages and add-on structures.

6. A representative number of samples must be taken of all suspect ACM before an inspector can report "no ACM present". All sampling should be done in accordance with AHERA requirements and be marked on a facility diagram for the purpose of duplicating the sample testing if necessary. All suspect materials shall be tested. The number of samples may be increased at the APC's direction in the APC's sole discretion. If the facility contains no RACM or the facility contains RACM, but in an amount less than ten (10) square feet and/or sixteen (16) linear feet and/or three (3) cubic feet, a demolition/renovation notification form must be submitted to APC along with the Building Division demolition permit application ten (10) working days prior to demolition. APC will approve the demolition after verification and approval of its findings in writing and certified under penalty of perjury.

7. A complete inspection report, including samples and results, must be submitted to APC.

a. If the inspection determines that there are amounts of RACM in excess of ten (10) square feet and/or sixteen (16) linear feet and/or three (3) cubic feet, but less than one hundred sixty (160) square feet, two hundred sixty (260) linear feet, and/or thirty-five (35) cubic feet, an asbestos abatement contractor must submit a notification to APC ten (10) working days prior to the date asbestos abatement activity is scheduled to begin, and if the asbestos abatement project is associated with a demolition activity the applicable notification fee must accompany the notification.

b. If the inspection determines that there are amounts of RACM equal to or in excess of one hundred sixty (160) square feet, two hundred sixty (260) linear feet, and/or thirty-five (35) cubic feet, an asbestos abatement contractor must submit a notification to APC, along with the applicable notification fee, ten (10) working days prior to the date asbestos project activity is scheduled to begin.

c. Work practices and procedures must be fully described, including but not limited to the methods of removal and containment.

d. Asbestos abatement contractors shall not begin any asbestos abatement project, asbestos project, or asbestos removal project activity without a notice of receipt letter from APC. When notification is approved, the asbestos abatement contractor must remove all RACM from the facility in accordance with the notification and asbestos rules and regulations.

e. If the structure will be demolished following an asbestos abatement project, asbestos project, or asbestos removal project, a completion letter or post-notification must be submitted to APC prior to receiving a demolition sign-off from APC. (A COMPLETION LETTER IS NOT A POST-NOTIFICATION). A post-notification must still be submitted within sixty (60) days of project completion.

8. If the facilities meet the definition of an installation and/or a commercial or public project, and the project is not followed by a planned demolition, notifications may be submitted in groups by city block when the structures combined contain RACM equal to or in excess of one hundred sixty (160) square feet, two hundred sixty (260) linear feet, and/or thirty-five (35) cubic feet. Any single structure that has RACM equal to or in excess of one hundred sixty (160) square feet, two hundred sixty (260) linear feet and/or thirty-five (35) cubic feet shall be notified separately.

9. Only a certified asbestos inspector can deem a structure unsafe to enter. If it is unsafe to inspect prior to demolition, and the facility's regulated asbestos content cannot be determined, the presence of asbestos must be assumed unless sampling proves to be negative. If the asbestos abatement contractor wants to segregate ACM from general debris, an asbestos inspector must be on site until the structure has been made safe enough to conduct a thorough inspection. An asbestos abatement supervisor must be on site during the demolition and proof of hire must be submitted with the demolition notification.

10. If the facility is being demolished under an order of a state or local government agency, issued because the facility is structurally unsound and in danger of imminent collapse, a notification shall be submitted to APC as early as possible before, but not later than the following work day after demolition has begun. The name, title, and authority of the state or local government representative who has ordered the demolition, the date that the order was issued, and the date on which the demolition was ordered to begin shall be attached to the notification. APC will sign-off on the demolition notification when all notification requirements have been satisfied. An inspector must be on site during the demolition to observe for suspect materials that were not accessible in collapsed or unsafe buildings. An asbestos abatement supervisor must be on site at all times and proof of hire must be submitted with notification. Destructive sampling should be conducted in areas such as pipe chases. All interior spaces should be inspected.

11. Demolition contractors shall notify using the web portal stlcitypermits.com when they begin work at a demolition site, and when they depart the demolition site each day of activity.

E. *Emergency Project.* Any person undertaking an emergency asbestos abatement project shall notify APC by web portal, telephone, email, or fax and must receive approval of emergency status. The person must notify APC within twelve (12) hours of the onset of the emergency. Business entities with state-approved exemption status are exempt from emergency notification for state-approved projects that are part of a NESHAP planned renovation annual notification. If the emergency occurs after normal working hours or weekend, the person shall contact APC on the following work day. The notice shall provide:

1. A description of the nature and scope of the emergency;

2. A description of the measures immediately used to mitigate the emergency; and

3. A schedule for removal. Following the emergency notice, the person shall provide APC a notification on the form provided by APC and the person shall submit it within three (3) days of the onset of the emergency. The amendment requirements for notification found in Subsection D.3 and 4 of this section are applicable to emergency projects.

F. *Procedures for Asbestos Emission Control.* Each owner or operator of a demolition or renovation that

contains regulated asbestos in excess of ten (10) square feet and/or sixteen (16) linear feet and/or three (3) cubic feet shall comply with the following procedures:

1. Remove all RACM from a facility, building, or structure being demolished or renovated before any activity begins that would break up, dislodge, or similarly disturb the material or preclude access to the material for subsequent removal. RACM does not have to be removed before demolition if:

a. It is Category l non-friable ACM that is not in poor condition and is not friable, and it will not be made friable by the removal activity.

b. It is a facility component that is encased in concrete or other similarly hard material and is adequately wet whenever exposed during demolition.

c. It is not accessible for testing and was, therefore, not discovered until after demolition began and, as a result of the demolition, the material cannot be safely removed. If not removed for safety reasons, the exposed RACM and any asbestos-contaminated debris must be treated as asbestos-containing waste material and remain adequately wet at all times until disposed of.

d. It is Category II non-friable asbestos containing material and the probability is low that the materials will become crumbled, pulverized, or reduced to powder during demolition.

2. When a facility component that contains, is covered with, or is coated with RACM is being taken out of the facility as a unit or in sections:

a. Adequately wet all RACM exposed during cutting or disjoining operations.

b. Carefully lower each unit or section to the floor and to ground level, not dropping, throwing, sliding, or otherwise damaging or disturbing the RACM.

3. When RACM is stripped from a facility component while it remains in place in the facility, adequately wet the RACM during the stripping operation.

4. After a facility component covered with, coated with, or containing RACM has been taken out of the facility as a unit or in sections, it shall be contained in leak-tight wrapping.

5. For large facility components such as reactor vessels, large tanks, and steam generators, the RACM is not required to be stripped if the following requirements are met:

a. The component is removed, transported, stored, disposed of, or reused without disturbing or damaging the RACM;

b. The component is encased in a leak-tight wrapping; and

c. The leak tight wrapping is labeled during all loading and unloading operations and during storage.

6. For all RACM, including material that has been removed or stripped:

a. Adequately wet the material and ensure that it remains wet until collected and contained or treated in preparation for disposal.

b. Carefully lower the material to the ground and floor, not dropping, throwing, sliding, or otherwise damaging or disturbing the material.

c. Transport the material to the ground via leak-tight chutes or containers if it has been removed or stripped more than fifty (50) feet above ground level and was not removed as units or in sections.

7. The person who conducts the demolition of unsafe buildings or parts of buildings containing asbestos may proceed with the demolition until it is safe for the asbestos abatement contractor to take representative samples of debris. It must be assumed that the debris contains regulated asbestos unless it can be proven through sampling that the debris or parts of the debris have asbestos content of less than one (1) percent in accordance with 40 CFR 61.141. If parts of the debris contain one (1) percent or less, and other parts contain greater than one (1) percent, and the various debris can be safely separated, then only those area of debris which contain greater than one (1) percent regulated asbestos must be specially handled. The following procedures on those portions of the buildings that pose imminent danger to public health or safety, or both, may be used:

a. The person shall ensure that the debris is wet at all times and stays wet until disposed. The person shall ensure that the project activities generate no visible emissions.

b. The person shall ensure that on site at all times during the demolition is an individual who is trained in asbestos removal techniques and who is certified as an asbestos abatement supervisor.

8. For emergency demolitions being conducted under an order of a state or local government agency:

a. Adequately wet the portion of the facility that contains RACM during the wrecking operation.

b. In all such cases where there is uncertainty as to the regulated asbestos in the facility, it should be assumed that it contains regulated asbestos until such time that representative samples can be taken of the

debris to ascertain if greater than one (1) percent in accordance with 40 CFR 61.141, regulated asbestos content is present.

c. An asbestos abatement supervisor must be on site at all times.

9. Demolition contractors shall employ fugitive dust control measures in accordance with the City of St. Louis Department of Public Safety Building Division Demolition Handbook.

G. *Third Party Air Monitoring.*

1. No one employed by an owner or operator of a demolition or renovation activity, or person, partnership, or corporation performing or managing the demolition, construction, reconstruction, alteration, or occupancy on or at the site, or by or with a person, partnership, or corporation that shares a same, in whole or in party, ownership or control group will be employed as air sampling personnel.

2. An air sampling professional must be responsible to conduct all air sampling or be the responsible supervisor for air sampling technicians performing the sampling. When conducting the sampling, the air sampling professional is responsible to ensure all samples are analyzed by Phase Contrast Microscopy (PCM) under NIOSH method 7400, or to request analysis under transmission electron microscopy when necessary to distinguish asbestos fibers from other fibrous materials. The air sampling professional is responsible to ensure the following:

a. Area sampling shall be conducted using collection media and procedures in accordance with NIOSH method 7400. The following schedule shall be used for air sampling during an asbestos project (as defined by this section) in addition to any OSHA compliance monitoring required to be conducted by the contractor:

(1) Background air samples shall be collected and analyzed prior to the start of the asbestos project activities in order to determine background airborne fiber concentrations. Samples shall be taken both inside and outside of the work area to establish existing levels.

(2) The following schedule of samples shall be required on a daily basis once asbestos abatement activities begin. The size of the abatement activity will have impact on the number of samples necessary to monitor the contractor's activities. The following are required minimums:

(a) Two (2) area samples inside the work area;

(b) One (1) personal sample inside the work area;

(c) Two (2) area samples outside the work area in uncontaminated areas of the building, including one at the entrance to the worker decontamination enclosure; and

(d) One area sample at each discharge from negative pressure ventilation equipment to the outside of the building.

(3) Air monitoring results shall be documented and retained on site.

3. Third party continuous air monitoring is required during removal of all ACM if the building is occupied. (Monitoring is not required for demolitions if less than one hundred sixty (160) square feet, two hundred sixty (260) linear feet, or thirty-five (35) cubic feet of material is removed prior to demolition.). Final air clearance is required after ACM removal if the building is occupied or will be occupied at a later date. (Final air clearance is not required for demolitions if less than one hundred sixty (160) square feet, two hundred sixty (260) linear feet, or thirty-five (35) cubic feet of material is removed prior to demolition).

H. *Post Notification.*

1. Any person undertaking an asbestos abatement project or asbestos removal project that requires notification according to Subsection D of this section shall, on the APC provided form, notify APC within thirty (30) days of the completion of the project. This notice shall include a signed and dated receipt for the asbestos waste generated by the project issued by the landfill named on the notification. This notice shall include any final clearance air monitoring results. The air sampling technician performing the analysis shall sign and date all reports of analysis.

2. Business entities that qualify for exemption status are exempt from post-notification requirement, but shall keep records of waste disposal for department inspection.

(Ord. No. 71332, § 11, 4-19-2021.)

11.34.110 Air pollution nuisance prohibited.

The emission or escape into the ambient (outside) air within the City from any source or sources whatsoever of smoke, ashes, dust, soot, cinders, dirt, grime, acids, fumes, gases, vapors, odors, or any other substances or elements in such amounts as are detrimental to, or endanger the health, comfort, safety, welfare, property, or the normal conduct of business shall constitute a public nuisance, and it is considered unlawful for any person to cause, permit, or maintain any such

public nuisance. The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may give additional consideration to the presence of emissions that cause severe annoyance or discomfort, or are offensive and objectionable to a significant number of citizens as determined by the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health.
(Ord. No. 71332, § 12, 4-19-2021.)

11.34.120 Motor vehicle idling prohibited.

A. No person shall cause or permit the engine of a motor vehicle to operate in idle for longer than five (5) minutes in any hour while parking, standing or stopped as defined by St. Louis City Revised Code Title 17, Vehicles and Traffic. When ambient temperatures are below thirty-two (32) degrees Fahrenheit, a motor vehicle may not operate in idle for longer than ten (10) minutes in any hour.

B. *Exceptions.*

1. Emergency vehicles.

2. Vehicles transporting disabled or special needs persons.

3. Vehicles that provide power for auxiliary purposes.

4. When operators of a motor vehicle are forced to remain motionless because of traffic or adverse weather conditions affecting the safe operation of the vehicle.

5. Vehicles that are being repaired or undergoing diagnostics tests.

6. Vehicles engaged in the delivery of goods, wares, or merchandise.

C. *Enforcement.* Section 11.34.120, Subsection A of this chapter and Ordinance 68137 shall be enforced by a police officer or any law enforcement officer who is authorized to enforce traffic laws as a non-moving violation.

D. Penalty for Violation. Any person who violates the provisions in Section 11.34.120, Subsection A of this chapter shall be subject to a fine of up to one hundred dollars ($100.00).
(Ord. No. 71332, § 13, 4-19-2021.)

11.34.130 Open burning restrictions.

A. No person shall cause, suffer, allow or permit the open burning of refuse.

B. No person shall conduct, cause or permit the conduct of a salvage operation by open burning.

C. No person shall conduct, cause or permit the disposal of trade waste by open burning.

D. No person shall cause or permit the open burning of leaves, trees or the byproducts therefrom, grass, or other vegetation.

E. It shall be prima-facie evidence that the person who owns or controls property on which open burning occurs, has caused or permitted said open burning.

F. The following activities are exemptions to Subsections A—E of this section of this chapter.

1. A fire set by or under the supervision of a public officer to prevent or abate afire hazard.

2. A fire set for the purpose of instructing persons in firefighting techniques, as long as the requirements of Article 3, of the BOCA National Fire Code for Open Burning are adhered to.

3. Instructing persons in the proper method for determining the opacity of emissions.

4. The operation of equipment for the control of insects.

5. The preparation of food for residential, organizational, institutional, or commercial use.

6. Recreational fires and fires in proper containers for occupational warmth using only untreated wood, charcoal, propane or natural gas as fuel.

7. Public fireworks displays as permitted by the local authority.

8. Controlled burns for land management subject to notification of the Commissioner of Health and the Chief of the St. Louis Fire Department and of the neighbors in the immediate surrounding communities of the controlled burn.
(Ord. No. 71332, § 14, 4-19-2021.)

11.34.140 Right of inspection, disclosure, and submittal of requested information.

A. In the performance of their duties, the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health may enter any premises where they have reason to believe that air contaminants have been or are being emitted, or equipment operations, or processes exist or are being constructed, which they have reason to believe are or will be an air contaminant source, or which are required to be registered as sources of air pollution, or for any facility for which a permit is required.

1. No person shall refuse entry or access to the Commissioner of Health and/or his or her designee

operating as delegated agents of the State of Missouri, nor shall any person obstruct, hamper, or interfere with any such inspection.

2. Should the above right of entry be denied, then the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may present the evidence to the City Counselor and request that the Counselor prosecute said action in Municipal Court or present evidence to the Circuit Attorney for prosecution in Circuit Court. Anytime entry is sought using a search warrant the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may involve the aid of the Police Department to gain entry to make such inspection as authorized herein.

B. Any person responsible for the emission of air contaminants within the City of St. Louis shall when requested by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, supply this office with any requested information in an easily understandable format or on the forms supplied, in any manner or format specifically requested by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri.

(Ord. No. 71332, § 15, 4-19-2021.)

11.34.150 Cooperation of local governmental agencies required.

The assistance and cooperation of the St. Louis Metropolitan Police Department, the Division of Fire and Fire Prevention, the Building Division and all other Municipal Officials shall be available to the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health as required in the performance of their duties.

(Ord. No. 71332, § 16, 4-19-2021.)

11.34.160 Enforcement.

A. Whenever the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, determines that any of the terms or conditions of this chapter have been or are being violated, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may cause to be instituted any or all of the following enforcement actions.

1. At any time that the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, becomes aware that any of the provisions of this chapter have been or are being violated, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may cause to be issued a "notice of violation" (NOV) to the person responsible for the violation. This notice may be personally served by a representative of the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, sent by registered or certified mail to the last known address of the responsible person. This notice shall cite the section of the permit, section of City ordinance, or section of state or federal regulation violated, the date and time the violation occurred, and a brief description of the violation. It shall require that the responsible person abate the violation by a date specified in the notice. Within fourteen (14) calendar days of the date of abatement specified in the notice, the Commissioner of Health and/or his or her designee within the City of St. Louis Department of Health shall re-inspect the premise and/or file to determine compliance with the permit, regulation, or ordinance, of which this is a part. This re-inspection shall be known as a "NOV inspection." If no abatement date is specified in the NOV, the responsible person who has received the NOV shall be exempt from the "NOV Inspection" process. If the NOV is not complied with, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, shall have the authority to issue an administrative citation to any person responsible for the violation.

2. Administrative Citation Fine.

a. The administrative citation fine amount for a first violation shall be established under the provisions of Ordinance 69821.

b. The administrative citation fine for repeat violations of the same ordinance provision and/or state regulation by the same person at the same property within twelve (12) months from the date of the first administrative citation shall be established under the provisions of Ordinance 69821.

c. Any administrative citation fine which is not paid on or before its due date shall be liable for the payment of any applicable late payment charges set forth in the schedule of late payment filing fees.

d. The fine shall be paid to the city within thirty (30) days from the date of the administrative citation.

e. Any administrative citation fine paid pursuant to Subsection 2 of this section shall be refunded if it is determined, after a hearing, that the person charged in

the administrative citation was not responsible for the violation or that there was no violation as charged in the administrative citation.

3. In the event the responsible person fails to abate the violation by the date specified, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may take other enforcement actions as specified within this section, citing the same date and time of violation in these other actions that were set forth in the "notice of violation."

4. In the event the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, determines that:

a. The person is taking all reasonable means available to him to comply with the time limitations and that such compliance is not possible;

b. The delay is caused by conditions beyond the jurisdiction and control of such person; and

c. The imposition of the time limitation will cause an undue hardship, then the Commissioner of Health and/or his or her designee may grant such additional extensions of time as determined to be necessary and reasonable to achieve compliance.

B. In the event that it becomes necessary and is legally proper, the City Counselor is hereby empowered to institute proceedings in the Circuit Court in the name of the City in order to enforce the terms and conditions of this chapter.

(Ord. No. 71332, § 17, 4-19-2021.)

11.34.170 Fee schedule.

A. *Authorization.* The Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, is hereby authorized to collect the following fees based on the costs incurred to provide the services of air pollution control. Said fees are the maximum allowable under this chapter or constitutional due process, whichever is larger.

B. *Fees Non-Refundable.* All fees described in this section are non-refundable. Even if the project is cancelled by the facility, it is determined that a permit is not required, or if a permit is denied or issued with undesirable conditions the fees will not be refunded.

C. *Fee Descriptions.*

1. *Asbestos Fees:*

a. *Asbestos Abatement Project and Demolition Notification Fees.* Fees for notification referencing terms as defined in Section 11.34.100.A of this chapter.

Fee: One hundred dollars ($100.00) per notification of "asbestos abatement projects" with ten (10) to one hundred sixty (160) square feet and/or sixteen (16) to two hundred sixty (260) linear feet and/or three (3) to thirty-five (35) cubic feet.

Fee: Two hundred dollars ($200.00) per notification of "asbestos projects" with greater than one hundred sixty (160) square feet or greater than two hundred sixty (260) linear feet or thirty-five (35) cubic feet.

Fee: One hundred dollars ($100.00) per notification of "demolition," except the "asbestos project" fee will also apply when quantities are greater than one hundred sixty (160) square feet or greater than two hundred sixty (260) linear feet.

b. *Annual Notification Fee:* An annual notification may be obtained for planned or unscheduled renovation operations involving individual asbestos abatement projects predicted to be a combined additive amount of regulated asbestos containing materials to be removed or stripped during a calendar year (January 1 through December 31). The fee shall be two hundred dollars ($200.00) per annual notification per installation. Annual notification holders are required to notify for activities equal to or greater than ten (10) square feet or sixteen (16) linear feet or three (3) cubic feet.

c. Structures being demolished under an order of state or local government agency deemed structurally unsafe shall be an ordered demolition. Ordered demolition asbestos abatement project notification fees shall be two hundred dollars ($200.00) per structure.

d. *Asbestos Abatement Project Inspection Fee.* A fee for inspection of an "asbestos abatement project" or "demolition" as defined in Section 11.34.110.A of this chapter.

Fee: Two hundred dollars ($200.00) per inspection. Regardless of the number of inspections made, the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, may only charge for up to two (2) individual, separate inspections of the same "asbestos abatement project," "demolition" project, or "asbestos project."

e. *Notice of Violation "NOV" Inspection as defined in 11.34.170.*

Fee: Two hundred dollars ($200.00) for each NOV inspection.

2. *Administrative Fines and Fees:*

a. Administrative Citation Fines. Administrative citation fines imposed as a result of the recipient of a

notice of violation (NOV) not abating the violation, as described in Section 11.34.160 of this chapter, shall be in accordance with Ordinance 69821.

b. *Late Payment Fees.* All fees incurred based on the provisions of this chapter must be submitted to the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, agreed on or before the due date specified on the invoice. Any person, company, installation, or other organization that fails to submit payment in full by the due date shall be subject to the following late fees in addition to the initial fee:

Fee: Five (5) percent of original fee if thirty (30) to sixty (60) days late; ten (10) percent of original fee if sixty-one (61) to ninety (90) days late; twenty (20) percent of original fee if more than ninety (90) days late.

c. *Public Notices and Public Hearings.* The expenses incurred in the processing of any type of permit which requires public notice or participation for approval, or the request for a public hearing by a facility under the jurisdiction of the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, will be the responsibility of the applicant. All billings received by the Commissioner of Health and/or his or her designee operating as delegated agents of the State of Missouri, agreed for all such expenses will be forwarded to the applicant for payment. Final permit issuance is dependent upon the applicant's payment in full of all expenses incurred. (Ord. No. 71332, § 18, 4-19-2021.)

11.34.180 Penalty clause.

Every person convicted of a violation of any section of this chapter shall be punished by a fine of not less than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day that any violation shall continue, it shall constitute a separate offense. (Ord. No. 71332, § 20, 4-19-2021.)

Chapter 11.35

RESERVED

Editor's Note:

Ord. No. 68657, § 1, adopted June 2, 2010, repealed Ch. 11.35, §§ 11.35.010—11.35.070, which pertained to asbestos inspection and abatement and derived from Ord. No. 65442, § 1, 2001 and Ord. No. 65646, §§ 2—8, 2002. See now Ch. 11.34.

Chapter 11.36

FOOD HANDLING AND DISPLAY

RSMo:

RSMo Ch. 196 (2016) Food, drugs and tobacco

City Counselor Ops.: 8769

Sections:

11.36.010 Screening.
11.36.020 Sidewalk display.
11.36.030 Transportation.

11.36.010 Screening.

No person shall at any time within the period beginning with the first day of May and ending with the last day of October, in any year, place, keep, expose, offer or prepare for sale to the consumer, nor shall sell, nor shall store pending delivery of the same to the consumer, any article or substance of human food or drink in any place or premises in the City which is or are not at such time screened so as to prevent flying insects from having access to such article, or substance. No person shall at any time within such period in any year, carry, haul or convey for sale or delivery to the consumer, or place or keep or cause to be placed or kept in or upon any vehicle, within, upon, along or over any street, lane or alley or other public place or way in the City, for sale to the consumer, any article or substance of human food or drink, unless such article or substance at such time and place be covered, screened or otherwise protected in such manner as not to be accessible to flying insects; provided, however, no provisions of this section shall apply to or affect any article or substance of human food or drink, which at the time and place charged shall be in the possession of the owner thereof and intended exclusively for his own individual consumption; provided further, that no provision hereof shall apply to or affect any article of human food or drink which shall be in an unbroken container, tightly closed; and, provided, further that no provision hereof shall apply to or affect the sidewalk display, when not otherwise prohibited, of any article or substance of human food that must be peeled, pared or cooked before being fit for consumption, except meat and meat products. (1948 C., Ch. 26, § 1; 1960 C., § 477.010; 1994 C., § 11.36.010.)

McQuillin:

24.412 Screening against flies

11.36.020 Sidewalk display.

No person shall cause or permit the sidewalk display of any article or substance of human food or drink whatsoever for sale or delivery to the consumer at a height of less than eighteen inches above the surface of the sidewalk. (1948 C., Ch. 26, § 2; 1960 C., § 477.020; 1994 C., § 11.36.020.)

11.36.030 Transportation.

No person shall transport or convey over any street, alley or other place in the City, or shall keep on any truck or other vehicle while the same is standing on or being moved over any street, alley or other public place in the City, any article or substance of human food for sale or delivery, unless the same be protected by some covering sufficient to exclude all dust, dirt and other foreign matter; provided, however, that this section shall not apply to any of the merchandise, articles or things while the same are being received by those who do not sell the same directly to the consumer. (1948 C., Ch. 26, § 3; 1960 C., § 477.030; 1994 C., § 11.36.030.)

Chapter 11.38

FOOD INSPECTION AND SUPERVISION

RSMo:

RSMo Ch. 196 (2016) Food, drugs and tobacco

City Counselor Ops.: 8769

Cases:

The ordinances of the city of St. Louis did not require flour manufactured in the city to be submitted for inspection before sale. *City of St. Louis v. Shands,* 20 Mo. 149 (1854).

Sections:

11.38.010 **Office of inspector of human food products.**

11.38.020 **Inspectors of human food products—Bond.**

11.38.030 **Inspectors of human food products—Duties generally.**

11.38.040 **Inspectors of human food products—Powers—Condemnation of unwholesome food.**

11.38.050 **Duty of persons having unwholesome food.**

11.38.060 **Publication of names of offenders.**

11.38.010 Office of inspector of human food products.

There is hereby created the office of inspector of human food products for the City. (1948 C., Ch. 26, § 13; 1960 C., § 476.010(part); 1994 C., § 11.38.010.)

Cases:

Right to appoint inspectors under the police power of the state. *State ex rel. Barker v. Merchants Exchange of St. Louis,* 269 Mo. 346, 190 S.W. 903, Ann. Cas. 1917E, 871 (1917), affirmed 39 S.Ct. 114, 248 U.S. 365, 63 L.Ed. 300.

11.38.020 Inspectors of human food products—Bond.

Inspectors of human food products shall each give bond to the City in the sum of four thousand dollars. (1948 C., Ch. 26, § 14; 1960 C., § 476.010(part); 1994 C., § 11.38.020.)

11.38.030 Inspectors of human food products—Duties generally.

Inspectors of human food products shall perform such duties as may be prescribed by ordinance or required of them by the Health Commissioner. (1948 C., Ch. 26, § 15; 1960 C., § 476.010(part); 1994 C., § 11.38.030.)

11.38.040 Inspectors of human food products—Powers—Condemnation of unwholesome food.

Inspectors of human food products shall have power to enter all markets, stores, houses or other places where food products are offered for sale for human food. When such human food products are found on inspection to be tainted, diseased, corrupted or unwholesome from any cause, the inspector making the inspection shall condemn the same as unfit for human food, mutilate or mark the same in such manner as he may deem best to indicate condemnation of the same, and order the same to be immediately disposed of otherwise than for food. (1948 C., Ch. 26, § 16; 1960 C., § 476.020; 1994 C., § 11.38.040.)

11.38.050 Duty of persons having unwholesome food.

Any person having in possession any human food products which are tainted, diseased, corrupted or unwholesome from any cause, shall inform the Health Commissioner, in writing, under oath, within forty-eight hours after notification by an inspector as to what disposition has been made of such human food products. Any such person failing to comply with the provi-

sions of this section shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 17; 1960 C., § 476.030; 1994 C., § 11.38.050.)

11.38.060 Publication of names of offenders.

The name and place of business of any person who shall be convicted of any offense under this chapter shall be published by the Health Commissioner conspicuously in the newspapers doing the City printing. (1948 C., Ch. 26, § 19; 1960 C., § 476.040; 1994 C., § 11.38.060.)

Chapter 11.40

ADULTERATION

RSMo:

RSMo Ch. 196 (2016) Food, drugs and tobacco

RSMo 196.015 (2016) Adulteration of food prohibited

City Counselor Ops.: 8769

McQuillin:

24.410 Pure food and drugs

Sections:

11.40.010 Sale of adulterated provisions.

11.40.020 Food or drink.

11.40.030 Candy.

11.40.040 Liquids intended for drink.

11.40.050 Unwholesome food.

11.40.010 Sale of adulterated provisions.

Whoever shall sell any kind of diseased, corrupted, adulterated or unwholesome provisions to be used for food or drink, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 20; 1960 C., § 478.010; 1994 C., § 11.40.010.)

11.40.020 Food or drink.

Whoever shall adulterate, for the purpose of sale, any bread, milk or other article of food or drink whatever, with any substance injurious to health, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 21; 1960 C., § 478.020; 1994 C., § 11.40.020.)

11.40.030 Candy.

Whoever shall adulterate any candy or other confection intended for sale with any poisonous substance or any substance injurious to health, and whoever shall sell or expose for sale any such candy or other confection, so adulterated, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 22; 1960 C., § 478.030; 1994 C., § 11.40.030.)

RSMo:

RSMo 570.140 (2016) Deceptive business practices.

11.40.040 Liquids intended for drink.

Whoever shall adulterate, for the purpose of sale, any liquid or fluid used or intended for drink, with substances poisonous or injurious to health, and whoever in this City shall sell any such liquor or fluid so adulterated, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 23; 1960 C., § 478.040; 1994 C., § 11.40.040.)

11.40.050 Unwholesome food.

Any person who shall offer for sale to consumers for human food any human food products that are tainted, diseased, corrupted or unwholesome, or meat from any cattle, hog, sheep or calf that was unsound, sick, diseased or out of condition at the time of slaughter, shall be guilty of a misdemeanor. (1960 C., § 478.050: 1948 C., Ch. 26, § 18; 1994 C., § 11.40.050.)

Chapter 11.42

RESTAURANTS

Editor's Note:

Ord. No. 68597, §§ 1—5, adopted March 16, 2010, repealed the former §§ 11.42.001—11.42.208, 11.42.276, and 11.42.302—11.42.934 of Ch. 11.42 and enacted new provisions as set out herein. The former Parts I, II and V—XI, pertained to definitions, food care, personnel, equipment and utensils, cleaning, sanitization and storage of equipment and utensils, sanitary facilities and controls, construction and maintenance of physical facilities, mobile food units, temporary food service and enforcement provisions. For purposes of clarity, the remaining Parts IV and XII have been renumbered as Parts III and IV at the discretion of the editor. For a complete derivation of the former Chapter 11.42, see the Ordinance Table and Disposition List and the Code Comparative Table at the end of this volume.

Prior history: Ords. 48796, 56470, 56585 and 57070; 1948 C. Ch. 26 §§ 25-70; 1960 C. § 470

RSMo:

RSMo 196.190—196.250 (2016) Restaurant sanitary regulations

City Counselor Ops.: 8415, 8769

Cases:

Ordinance of the city of St. Louis regulating sanitary restaurants of that city applied to restaurants located in

public school buildings and operated by the board of education. *Smith v. Board of Education of City of St. Louis,* 221 S.W. 2d 203 (1949).

Statute giving board of education the right to put in lunch rooms for children does not place such restaurants beyond the ordinance of the city regulating restaurants and food service therein. *Bredeck v. Board of Education of City of St. Louis,* 213 S.W. 2d 889 (1948).

Sections:

Part I. Food Code

11.42.010 Adopted.
11.42.020 Amendments.
11.42.030 Section 1-101.10—Amended.
11.42.040 Section 1-201.10—Amended.
11.42.050 Section 201.11—Amended.
11.42.060 Section 2-102.11—Amended.
11.42.070 Section 2-201.14—Added.
11.42.080 Section 2-301.13—Added.
11.42.090 Section 3-201.17—Amended.
11.42.100 Section 3-304.17—Amended.
11.42.110 Section 3-307.12—Added.
11.42.120 Section 3-701.132—Added.
11.42.130 Section 5-203.11—Added.
11.42.140 Section 5-204.11—Added.
11.42.150 Section 6-301.12—Amended.
11.42.160 Section 6-501.115—Amended.
11.42.165 Part II of the Food Code adopted.
11.42.170 Penalties.

Part II. Miscellaneous Provisions

11.42.180 Healthy drink options.

Part III. Licenses—Gross Receipts Tax

11.42.240 Classes.
11.42.245 License fees.
11.42.250 Penalty for violation.
11.42.255 Gross receipts tax—Levied.
11.42.260 Gross receipts tax—Report.
11.42.265 Gross receipts tax—Exemption.
11.42.267 Gross receipts tax—Not applicable to religious, educational or charitable organizations.
11.42.270 Additional gross receipts license tax—Imposed.
11.42.272 Additional gross receipts license tax—Applicability and administration—Proceeds disposition.
11.42.274 Additional gross receipts license tax—Enforcement.
11.42.276 Reserved.
11.42.278 Additional gross receipts license tax—Dance hall license petition exemption.
11.42.280 Additional gross receipts license tax—Administration of Sections 11.42.276 and 11.42.278.
11.42.300—11.42.920 Reserved.

Part IV. Emergency First Aid Procedures

11.42.940 Definition.
11.42.942 Methods for removal of food lodged in throat.
11.42.944 Distribution of placards to establishments.
11.42.946 Guidelines for training programs.
11.42.948 Instructions to be posted—Penalty for violation.
11.42.950 Liability for damages.

PART I. FOOD CODE

Editor's note:

Ord. No. 71324, § 1, adopted February 23, 2021, amended the Code by repealing former Parts I and II, §§ 11.42.010—11.42.234, which pertained to amendments to the Food Code, and derived from the Code of 1994, § 11.42.090—11.42.234; Ord. No. 68597, adopted March 16, 2010; and Ord. No. 71106, approved March 18, 2020. Ord. No. 71324, §§ 2—4, added new provisions designated as Part I at the discretion of the editor.

11.42.010 Adopted.

Chapters 1 through 7, inclusive, of the Food Code, 2017, as published by the U. S. Department of Health and Human Services, Public Health Service, Food and Drug Administration, one copy of which is on file in the office of the Register of the City of Saint Louis, incorporated herein by this reference, with the changes made by Section Three of Ord. No. 71324, are hereby adopted as Part One (Chapters 1—7) of the St. Louis Food Code, effective ninety (90) days after the effective date of the ordinance from which this chapter derives; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Food Code are

hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Sections 11.42.020—11.42.232. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 71324, § 2, 2-23-2021.)

11.42.020 Amendments.

Chapters 1 through 7 inclusive of The National Food Code, 2017, are hereby amended and changed, for purposes of this chapter, in the following respects, as set out in this chapter. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.030 Section 1-101.10—Amended.

Delete 1-101.10; insert in lieu thereof:

1-101.10 City of Saint Louis Food Code. This ordinance shall be referred to as the CITY OF ST. LOUIS FOOD CODE. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.040 Section 1-201.10—Amended.

A. Delete the following definitions in 1-201.10(B); insert in lieu thereof:

CORE ITEM.

(1) "Core item" means a provision in this Code that is not designated as a priority item or a priority foundation item.

(2) "Core item" includes an item that usually relates to general sanitation, operational controls, sanitation standard operating procedures (SSOPs), facilities or structures, equipment design, or general maintenance.

(3) "Core item" is also known as non-CRITICAL ITEM.

PRIORITY ITEM.

(1) "Priority item" means a provision in this Code whose application contributes directly to the elimination, prevention or reduction to an acceptable level, hazards associated with foodborne illness or injury and there is no other provision that more directly controls the hazard.

(2) "Priority item" includes items with a quantifiable measure to show control of hazards such as cooking, reheating, cooling, handwashing; and

(3) "Priority item" is an item that is denoted in this Code with a superscript $^{P - P}$.

(4) "Priority item" is also known as CRITICAL ITEM.

PRIORITY FOUNDATION ITEM.

(1) "Priority foundation item" means a provision in this Code whose application supports, facilitates, or enables one or more priority items.

(2) "Priority foundation item" includes an item that requires the purposeful incorporation of specific actions, equipment or procedures by industry management to attain control of risk factors that contribute to foodborne illness or injury such as personnel training, infrastructure or necessary equipment, HACCP plans, documentation or record keeping, and labeling; and

(3) "Priority foundation item" is an item that is denoted in this Code with a superscript $^{Pf - Pf.}$

(4) "Priority foundation item" is also known as CRITICAL ITEM.

"REGULATORY AUTHORITY" means the Department of Health and Hospitals acting through the DIRECTOR, COMMISSIONER or their designee(s), including but not limited to employees of the Bureau of Environmental Health Services Food and Beverage Control Program of the City of St. Louis Department of Health, whose specific purpose is to assure the safety of FOOD ingested or imbibed in public places.

B. Add the following definitions in 1-201.10(B):

"COMMISSIONER" means the Commissioner of Health for the City of St. Louis.

"COTTAGE FOOD PRODUCTION OPERATION" means an operation out of a person's residential home, using a kitchen and appliances designed for common residential usage, that produces a baked good, canned jam or jelly, or a dried herb or herb mix for sale, selling only directly to consumers. A cottage food production operation shall not sell any foods through the internet unless both the cottage food production operation and the purchaser are located in the State of Missouri as required by Missouri law. Further, all cottage food for sale to consumers shall include a label that includes the name and address of the cottage food production operation and a statement that the food is not inspected by the Missouri Department of Health and Senior Services or City of St. Louis Department of Health. Cottage Food Production Operations need to obtain a "Cottage Food Production Operation Temporary Food Permit Waiver". Cottage Food Production Operation Temporary Food Permit Waiver holders are also eligible to participate in a "Temporary Food Safety Training Program".

"CRITICAL ITEM" means a provision of this Code, that, if in noncompliance, is more likely than other violations to contribute to FOOD contamination, illness, or environmental health HAZARD.

"DIRECTOR" means Director of Health for the City of St. Louis.

"GROCERY STORE" means a FOOD ESTABLISHMENT, place, or section of the place which offers food and food products to the consumer that are intended for off-premises consumption. The term includes delicatessens that offer prepared food in bulk quantities only, markets and convenience stores that sell POTENTIALLY HAZARDOUS FOODS that are prepackaged. The term does not include establishments which handle only prepackaged, non-POTENTIALLY HAZARDOUS FOODS; roadside markets and open-air markets that offer only whole, uncut fresh fruits and vegetables for sale; restaurant type establishments; or food and beverage vending machines.

"ICE" for use as FOOD or as a cooling medium means ice from an APPROVED source.

"LOW INCOME, LOW ACCESS (LILA)" in the context of a LILA Community Temporary Food Permit means a census tract in which there is officially identified both low access for the resident population to grocery stores as well as low income, based on the USDA Food Access Research Atlas. "Low-access" means the population in that census tract lives more than ½ mile from a grocery store. "Low-income" means 50% or more of the population are at or below 200 percent of the federal poverty level. The LILA census tracts are set forth both in words and pictorially on a map, containing neighborhood and ward designations, available from the City of St. Louis Department of Health.

"MOBILE FOOD ESTABLISHMENT" means a FOOD ESTABLISHMENT which travels from a fixed servicing area to one or more locations to serve FOOD or drink, and includes:

(1) Pushcarts, which are FOOD ESTABLISHMENTS that are non-motorized wheeled carts propelled solely by human power.

(2) Full-prep mobile FOOD ESTABLISHMENTS, which are vehicles which serve unpackaged FOOD prepared on or off the vehicle; and

(3) Packaged food mobile FOOD ESTABLISHMENTS, which are vehicles which serve only prepackaged, ready-to-eat FOOD or drink and/or whole, uncut fruit and/or vegetables from an APPROVED source.

"NUTRITIOUS FOOD" in the context of a LILA Community Food Permit means unadulterated food such as whole fruits and vegetables and unshelled nuts; poultry or meat, processed at a facility inspected by the Missouri Meat and Poultry Inspection Program (MMPIP) or the U.S. Department of Agriculture (USDA) Food Safety Inspection Service (FSIS), unless exempt by law, and then the seller must be registered with the State of Missouri as exempt; eggs permitted for sale with a Missouri egg license; milk, cheese, and other dairy products approved by the Missouri State Milk Board; fish, oysters, clams, mussels, and other molluscan shellfish; products from any tree, vine, or plant and other flowers; or any of the products listed above in this definition that have been processed by a vendor that has a permanent FOOD ESTABLISHMENT annually renewable permit (in the City of St. Louis or another local jurisdiction in the State of Missouri and within 50 miles of the City of St. Louis), including, but not limited to, baked goods made with farm products.

"ORDER OF CESSATION" means a written notice to cease FOOD service operation issued by the COMMISSIONER forthwith or in conjunction with the suspension of a FOOD ESTABLISHMENT PERMIT or GROCERY STORE PERMIT.

"RECONSTITUTED" means dehydrated FOOD products recombined with water or other liquids.

C. Delete the definition of "Servicing area" in 1-201.10(B) and insert in lieu thereof the following:

"SERVICING AREA" means a FOOD ESTABLISHMENT that serves as an operating base location to which a MOBILE FOOD ESTABLISHMENT or transportation vehicle returns regularly for such things as vehicle and equipment cleaning, discharging liquid or solid wastes, refilling water tanks and ICE bins, and boarding FOOD.

"TEMPORARY FOOD ESTABLISHMENT" means a FOOD ESTABLISHMENT that operates for a period of no more than fourteen (14) days in any calendar year, except that LILA Community Temporary Food Permits, Specialty Food Temporary Permits, Farmers Market Temporary Food Permits, Sponsored Tempo-

rary Food Permit and Charitable Feeding Temporary Food Permits are not limited to fourteen (14) days in any calendar year, but have their own limitation periods set forth herein. Temporary food establishments shall comply with all requirements of Chapters 9 and 10 of this Ordinance. Temporary food establishments shall obtain one of the following temporary permits or temporary permit waivers if they qualify:

"TEMPORARY FOOD PERMIT" means a temporary document issued by the REGULATORY AUTHORITY that authorizes a PERSON to operate a FOOD ESTABLISHMENT. This document can be reapplied for after the expiration of a stipulated time frame unless otherwise stated. They include:

Traditional Temporary Food Permit, Specialty Food Temporary Permit, LILA Community Temporary Food Permit, Farmers Market Temporary Food Permit, Sponsored Temporary Food Permit, Charitable Feeding Temporary Food Permit, Cottage Food Production Operation Temporary Food Permit Waiver.

A. "Charitable Feeding Temporary Food Permit" means a TEMPORARY FOOD PERMIT that is obtained if the applicant is giving away all FOOD without any charge. Charitable Feeding TEMPORARY FOOD PERMIT HOLDERS shall comply with all requirements of Chapters 9 and 10 of this Ordinance. Application for the PERMIT shall be made for each event day. Charitable Feeding TEMPORARY FOOD PERMIT holders are also required to participate in a "Temporary Food Safety Training Program". A person trained in the Temporary Food Safety Training Program shall be present on site during the entire period that FOOD is distributed.

B. "Cottage Food Production Operation Temporary Food Permit Waiver" means a TEMPORARY FOOD PERMIT waiver that is obtained if the applicant is engaged in a cottage FOOD production operation as defined herein. The permit waiver can be reapplied for annually. Cottage FOOD Production Operation TEMPORARY FOOD PERMIT Waiver holders are also eligible to participate in a "Temporary Food Safety Training Program".

C. "Farmers Market Temporary Food Permit" means a temporary food permit that is obtained if the applicant is selling POTENTIALLY HAZARDOUS FOODS with two or more farm vendors directly to customers at a common, recurrent physical location any time, when the applicant is not eligible for a LILA Community TEMPORARY FOOD PERMIT. Farmers Market TEMPORARY FOOD PERMIT holders shall comply with all requirements of Chapter 9 and 10 of this Ordinance. Application for the PERMIT shall be made annually or each season. Farmers Market TEMPORARY FOOD PERMIT holders are also required to participate in a "Temporary Food Safety Training Program". A person trained in the Temporary Food Safety Training Program shall be present on site during the entire period that food is distributed.

D. "LILA Community Temporary Food Permit" means a TEMPORARY FOOD PERMIT that is obtained if the applicant lives in a LOW INCOME, LOW ACCESS (LILA) census tract, as defined in the current LILA census tract map obtainable from the City of St. Louis Department of Health and set forth, and is selling or providing only NUTRITIOUS FOOD, as defined herein, in a LOW INCOME, LOW ACCESS (LILA) census tract, as defined herein and set forth. Application for the PERMIT shall be made for each event day. LILA Community TEMPORARY FOOD PERMIT applicants are encouraged to sell locally sourced NUTRITIOUS FOOD that is raised within 50 miles of the LILA census tract location where it is being sold. LILA Community TEMPORARY FOOD PERMIT holders shall comply with all requirements of Chapters 9 and 10 of this Ordinance. LILA Community TEMPORARY FOOD PERMIT holders are also required to participate in a "Temporary Food Safety Training Program". A person trained in the Temporary Food Safety Training Program shall be present on site during the entire period that FOOD is sold.

E. "Specialty Food Temporary Permit" means a TEMPORARY FOOD PERMIT that is obtained if the applicant sells or distributes what are deemed to be lower risk FOODS such as popcorn, lemonade, or shaved ice/snow cones. The permit can be reapplied for annually. PERMIT locations are inspected at least once a year. Specialty FOOD TEMPORARY PERMIT holders are also required to participate in a "Temporary Food Safety Training Program." A person trained in the Temporary Food Safety Training Program shall be present on site during the entire period that FOOD is sold. Specialty FOOD TEMPORARY PERMIT holders shall comply with all requirements of Chapters 9 and 10 of this Ordinance.

F. "Sponsored Temporary Food Permit" means a TEMPORARY FOOD PERMIT that is obtained if

the applicant is a sponsor of an event where there are at least five (5) vendors in a common physical location; all vendors must have a current permanent FOOD ESTABLISHMENT annually renewable PERMIT (in the City of St. Louis or another local jurisdiction in the State of Missouri and within 50 miles of the City of St. Louis) or a Traditional TEMPORARY FOOD PERMIT. The Sponsored TEMPORARY FOOD PERMIT is required whether there are free samples or sale of FOOD. SPONSORED TEMPORARY FOOD PERMIT holders shall comply with all requirements of Chapters 9 and 10 of this Ordinance. Application for the permit shall be made for each event day.

G. "Traditional Temporary Food Permit" means a TEMPORARY FOOD PERMIT that is obtained if the applicant does not qualify for one of the other TEMPORARY FOOD PERMITS set forth above. The applicant is limited to operating a temporary FOOD ESTABLISHMENT for no more than fourteen (14) days in any calendar year. Traditional TEMPORARY FOOD PERMIT holders are required to participate in a "Temporary Food Safety Training Program." A person trained in the Temporary Food Safety Training Program shall be present on site during the entire period that food is sold. Traditional TEMPORARY FOOD PERMIT holders shall comply with all requirements of Chapter 9 and 10 of this Ordinance.

D. Add to 1-201.10 the following:

"UNWHOLESOME" means the condition of any FOOD which is diseased, decayed, tainted, putrid, infected, poisoned, ADULTERATED, contaminated, unclean or otherwise impure or unfit for human consumption.

"VOLUNTEER" means a person who performs work without pay in a FOOD ESTABLISHMENT or GROCERY STORE for thirty consecutive days or less in a twelve-month period.

"WHOLESOME" means in sound condition, clean, free from adulteration and otherwise suitable for use as human FOOD.

(Ord. No. 71972, § 1, 2-24-2025; Ord. No. 71324, § 3, 2-23-2021.)

11.42.050 Section 201.11—Amended.

A. Add the following at the end of 2-201.11 (A)(1):

(f) Any symptom required by the COMMISSIONER where deemed necessary to protect the public health.

B. Add the following at the end of 2-201.11 (A)(2):

(f) A diagnosis required by the COMMISSIONER when deemed necessary to protect the public health. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.060 Section 2-102.11—Amended.

Delete 2-102.11 (B) and add in lieu thereof:

(B) Being a certified FOOD protection manager who has shown proficiency of required information through passing a test that is part of an ACCREDITED PROGRAM; and (Ord. No. 71324, § 3, 2-23-2021.)

11.42.070 Section 2-201.14—Added.

Add as 2-201.14 the following:

2-201.14 Hepatitis A Immunization

(A) Every holder of a PERMIT for a FOOD ESTABLISHMENT, operating for more than ten days, shall verify a certificate of immunization from a health care provider for the Hepatitis A virus from every EMPLOYEE assigned to the preparation, display or service of FOOD for such FOOD ESTABLISHMENT within thirty (30) days after the commencement of such EMPLOYEE'S employment with the PERMIT HOLDER, unless:

(1) such EMPLOYEE objects to vaccination because of a religious belief; or

(2) such EMPLOYEE provides a statement from a health care provider that such EMPLOYEE:

(a) is immune from the Hepatitis A virus; or

(b) is pregnant; or

(c) is allergic to the Hepatitis A vaccine; or

(3) the PERMIT HOLDER certifies to the REGULATORY AUTHORITY that such EMPLOYEE is a VOLUNTEER.

(B) The PERMIT HOLDER shall maintain a copy of the certificate of immunization for the Hepatitis A virus, or other documents as provided for in 2-201.14 (A), for each designated EMPLOYEE throughout the period of such EMPLOYEE'S employment and for a period of six months (6) following the termination of such employment and shall make such copies available for inspection by inspectors for the REGULATORY AUTHORITY or the State of Missouri upon request.

A certificate of immunization as required by 2-201.14 (A) shall be sufficient for purposes of this Section if it certifies that the EMPLOYEE has received the initial vaccination for the Hepatitis A virus within the previ-

ous six (6) months, so long as such EMPLOYEE provides the PERMIT HOLDER with a certification of the required booster shot within one year of the date of the original vaccination.

(C) Failure on the part of the PERMIT HOLDER to

(1) verify a certificate of immunization for the Hepatitis A virus from every EMPLOYEE assigned to the preparation, display, or service of FOOD for such FOOD ESTABLISHMENT; or

(2) maintain a copy of the certificate of immunization for the Hepatitis A virus, or other documents as

provided for in this Section, for each designated EMPLOYEE throughout the period of such EMPLOYEE'S employment and for a period of six (6) months following the termination of such employment; or

(3) make copies of such certificates of immunization, or other documents as provided for in 2-201.14(A), available for inspection by inspectors for the REGULATORY AUTHORITY or the State of Missouri, shall constitute a violation of this ordinance and a hazard to public health. The COMMISSIONER is authorized to suspend or revoke the FOOD ESTABLISHMENT PERMIT of any PERSON found in violation of the provisions of this section as provided by LAW. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.080 Section 2-301.13—Added.

Add as 2-301.13 the following:

Special Handwash Procedures. Special handwash procedures and other sanitary measures or protocols may be required by the REGULATORY AUTHORITY when deemed necessary to protect the public's health. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.090 Section 3-201.17—Amended.

Add as 3-201.17(C) the following:

3-201.17(C)

(C) In accordance with section 252.244 R.S.Mo., any political subdivision, elementary or secondary school or any charitable, religious, fraternal, or other not-for-profit organization may prepare or serve wild game provided there is no charge for the wild game served as according to section 252.244 R.S.Mo. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.100 Section 3-304.17—Amended.

Add as 3-304.17(B)(5) the following:

3-304.17(B)(5)

(5) For purposes of this paragraph FOOD ESTABLISHMENT includes the original food establishment from which a CONSUMER obtained the container as well as any other FOOD ESTABLISHMENT in the City of St. Louis, so long as there is compliance with subparagraphs (1) and (4) of this 3-304.17(B). (Ord. No. 71324, § 3, 2-23-2021.)

11.42.110 Section 3-307.12—Added.

Add as 3-307.12 the following:

3-307.12 Emergency Occurrences. In the event of a fire, flood, power outage, natural or manmade disaster, or similar event that might result in the contamination of food, or that might prevent POTENTIALLY HAZARDOUS FOOD from being held at required temperatures, the PERSON IN CHARGE shall immediately contact the REGULATORY AUTHORITY. Upon receiving notice of such an occurrence, the REGULATORY AUTHORITY shall take whatever action it deems necessary to protect the public health. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.120 Section 3-701.132—Added.

Add as 3-701.132 the following:

3-701.132 Examination and Condemnation of Food

(A) FOOD may be examined, or samples may be taken for analysis to a laboratory designated by the REGULATORY AUTHORITY as often as may be necessary to determine freedom from adulteration or misbranding.

(B) The REGULATORY AUTHORITY may, upon written notice to the owner or PERSON IN CHARGE, issue an order placing a hold on any FOOD which the REGULATORY AUTHORITY has probable cause to believe or has determined to be unwholesome or otherwise adulterated or misbranded. Under such a hold order, FOOD shall be permitted to be suitably stored but may not be sold or given away. If this FOOD is not stored under the requirements of this chapter, immediate condemnation and destruction of the FOOD shall be ordered by the COMMISSIONER.

(C) It is a violation of this ordinance for any PERSON to disobey or in any manner interfere with an order of the REGULATORY AUTHORITY placing a hold on FOOD. It is a violation of this ordinance for any PERSON to remove or alter a hold order, notice, or tag placed on FOOD by the REGULATORY AUTHORITY, or to re-label or re-pack, or reprocess or alter or dispose of any FOOD or the containers thereof upon which an order to hold has been issued by the REGULATORY AUTHORITY, except with the written consent of the REGULATORY AUTHORITY.

(D) Any PERSON aggrieved by an order to hold FOOD may have a hearing before the COMMISSIONER if written request is made within ten (10) days from the service of the notice of the order. After a hearing, the COMMISSIONER may vacate the hold order. The COMMISSIONER may, by written order after a hearing, or after ten (10) days if no hearing is requested, direct the PERMIT HOLDER or PERSON

IN CHARGE of the FOOD which was placed on hold to denature or destroy such FOOD or to bring it into compliance with the provisions of this chapter.

(E) If the COMMISSIONER has cause to believe that any FOOD item is a risk to the public health based on failure to meet the requirements of this chapter, a condemnation of such a FOOD item may be issued resulting in immediate disposal of such FOOD item. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.130 Section 5-203.11—Added.

Add as 5-203.11 the following:

5-203.11 Handwashing Sinks

(D) The location and construction of HANDWASHING SINKS shall be such that no splash may potentially contaminate FOOD, FOOD-CONTACT SURFACEs, UTENSILs, clean EQUIPMENT, SINGLE-SERVICE ARTICLES, SINGLE-USE ARTICLES or LINENs. When there is potential for CROSS-CONTAMINATION, a splash guard shall be installed. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.140 Section 5-204.11—Added.

5-204.11 Handwashing Sinks A HANDWASHING SINK shall be located:

(1) To allow convenient use by EMPLOYEES in FOOD preparation, FOOD dispensing, and WAREWASHING areas; no EMPLOYEE in such areas shall be required to travel more than twenty (20) feet from any work station, or to pass through a door or other obstruction to reach a HANDWASHING SINK; and

(2) In, or immediately adjacent to, toilet rooms; and

(3) Conveniently located. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.150 Section 6-301.12—Amended.

Delete 6-301.12 and insert in lieu thereof the following:

6-301.12 Hand Drying Provision.

Each HANDWASHING SINK or group of adjacent HANDWASHING SINKS shall be provided with:

(1) Individual, disposable towels;

(2) A continuous towel system that supplies the user with a clean towel; or

(3) A heated-air hand drying device; or

(4) A hand drying device that employs an air-knife system that delivers high velocity, pressurized air at ambient temperatures.

(5) Items (2), (3), and (4) do not apply to handwashing sinks in FOOD preparation, FOOD service or UTENSIL washing areas. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.160 Section 6-501.115—Amended.

Add as 6-501.115 (D) the following:

6-501.115 Prohibiting Animals

(A) Except as specified in 6-501.115 (B) and (C) of this section, live animals may not be allowed on the PREMISES of a FOOD ESTABLISHMENT.

(B) Live animals may be allowed in the following situations if the contamination of FOOD, clean EQUIPMENT, UTENSILS, and LINENS, and unwrapped SINGLE-SERVICE and SINGLE-USE ARTICLES cannot result:

(1) Edible FISH or decorative FISH in aquariums, shellfish or crustacea on ICE or under refrigeration, and shellfish and crustacea in display tank systems;

(2) Patrol dogs accompanying police or security officers in offices and dining, sales, and storage areas, and sentry dogs running loose in outside fenced areas;

(3) In areas that are not used for FOOD preparation and that are usually open for customers, such as dining and sales areas, SERVICE ANIMALS that are controlled by the disabled EMPLOYEE or PERSON, if a health or safety HAZARD will not result from the presence or activities of the SERVICE ANIMAL;

(4) Pets in the common dining areas of institutional care facilities such as nursing homes, assisted living facilities, group homes, or residential care facilities at times other than during meals if:

(a) Effective partitioning and self-closing doors separate the common dining areas from FOOD storage or FOOD preparation areas,

(b) Condiments, EQUIPMENT, and UTENSILS are stored in enclosed cabinets or removed from the common dining areas when pets are present, and

(c) Dining areas including tables, countertops, and similar surfaces are effectively cleaned before the next meal service.

(5) In areas that are not used for FOOD preparation, storage, display, or dining, in which there are

caged animals or animals that are similarly confined, such as in a variety store that sells pets or a tourist park that displays animals; and

(6) Dogs in outdoor patio establishments that meet all requirements of Ordinance 67611.

(C) Live or dead fish bait may be stored if contamination of FOOD, clean EQUIPMENT, UTENSILS, and LINENS, and unwrapped SINGLE-SERVICE and SINGLE-USE ARTICLES cannot result.

(D) VARIANCES may be granted by the COMMISSIONER as provided by Section 10-101.13. (Ord. No. 71324, § 3, 2-23-2021.)

11.42.165 Part II of the Food Code adopted.

The following provisions are hereby adopted as Part Two of the St. Louis Food Code, effective ninety (90) days after the effective date of the ordinance from which this chapter derives.

CHAPTER 8
MOBILE FOOD SERVICE

8-101.11 Mobile Food Service-General

MOBILE FOOD ESTABLISHMENTS shall comply with the requirements of this chapter, except as otherwise provided in this section and in §8-101.12.

(A) The REGULATORY AUTHORITY may impose additional requirements to protect against health HAZARDS related to the conduct of the FOOD ESTABLISHMENT as a mobile operation and may prohibit the sale of some or all POTENTIALLY HAZARDOUS FOOD.

(B) The REGULATORY AUTHORITY may grant a VARIANCE as provided by §10-101.13 of requirements of this chapter relating to physical facilities, except those requirements of §§8-101.16, 8-101.17, 8-101.18, and 8-101.19.

8-101.12 Mobile Food Service-Restricted Operation

MOBILE FOOD ESTABLISHMENTS serving only ready to eat FOOD, packaged in individual servings, transported and stored under conditions meeting the requirements of this chapter, or beverages that are not potentially hazardous and are dispensed from covered urns or other protected EQUIPMENT, need not comply with requirements of this chapter pertaining to water and SEWAGE systems nor with those requirements pertaining to the cleaning and sanitization of EQUIPMENT and UTENSILS if the required EQUIPMENT for cleaning and sanitization exists at the commissary.

8-101.13 Mobile Food Service-Motorized Wheeled Vehicle Requirements

(A) Every motor vehicle used by a MOBILE FOOD ESTABLISHMENT in the conduct of its business shall comply with the following requirements:

(1) The vehicle shall be enclosed with top and sides.

(2) The interior floor, walls and ceiling of each vehicle shall be of smooth, not readily corrodible, impervious material capable of withstanding repeated washing and scrubbing and shall be finished in a light color. Each vehicle shall be well-painted, in good repair, in good sanitary condition, and shall not be used for any other purpose except as provided in this section.

(3) The FOOD service sections of the vehicle shall be insect and rodent proof.

(4) The FOOD ESTABLISHMENT reference number shall appear on both sides of the vehicle in letters at least two inches in height.

(5) All FOOD service EQUIPMENT utilized in the mobile FOOD operation shall be of easily cleanable construction and shall be maintained in good repair and shall be clean.

(6) When required, a ventilation system shall be provided and operated in compliance with §§4-202.18, 4-204.11 and 4-301.14.

(7) The vehicle shall be inspected annually and properly permitted by the Building Division of the City of St. Louis and the Fire Department of the City of St. Louis.

(B) MOBILE FOOD ESTABLISHMENTS, which are Pushcarts, shall comply with the following requirements:

(1) Constructed of stainless steel or other corrosion resistant nonabsorbent material and shall be easily cleanable and durable under normal conditions.

(2) All EQUIPMENT utilized in the FOOD service operation shall be National Sanitation Foundation (NSF) approved or equivalent.

(3) Such additional features related to the safe dispensing of FOOD, beverage and flavorings, as may be required by the REGULATORY AUTHORITY.

(4) The FOOD ESTABLISHMENT reference number shall appear on both sides of the cart in letters at least two inches in height.

8-101.14 Mobile Food Service-Refrigeration and Heating Equipment

(A) Adequate mechanical refrigeration or its equivalent as approved by the REGULATORY AUTHORITY shall be provided and all POTENTIALLY HAZARDOUS FOOD and other perishable products, including meat sandwiches, ice cream, ice milk, frozen dessert mix and frozen desserts, shall be stored in the vehicle at a temperature not in excess of 41°F (5°C).

(B) Each hot FOOD facility storing POTENTIALLY HAZARDOUS FOOD shall be equipped with a thermometer to indicate the internal temperature of the facility. The internal temperature of POTENTIALLY HAZARDOUS FOOD shall be 135°F (57°C) or above.

8-101.15 Mobile Food Service-Single Service and Single Use Articles

Only SINGLE-SERVICE and SINGLE-USE ARTICLES shall be used. All SINGLE-SERVICE and SINGLE-USE ARTICLES shall be stored in a clean place, properly handled, used only once and protected from contamination by customers, dust, dirt or insects.

8-101.16 Mobile Food Service-Water-System

(A) A MOBILE FOOD ESTABLISHMENT requiring a water system shall have a potable water system under pressure. The system shall be of sufficient capacity to furnish enough hot and cold water for FOOD preparation, UTENSIL cleaning and sanitizing, and hand washing, in accordance with the requirement of this ordinance.

(B) The water inlet shall be located so that it will not be contaminated by waste discharge, road dust, oil, or grease, and it shall be kept capped unless being filled.

(C) The water inlet shall be provided with a transition connection of a size or type that will prevent its use for any other service. All water distribution pipes, or tubing shall be constructed and installed in accordance with the requirements of this ordinance.

8-101.17 Mobile Food Service-Waste Retention

(A) If liquid waste results from operation of a MOBILE FOOD ESTABLISHMENT, the waste shall be stored in an installed retention tank the capacity of which is at least fifteen (15) percent larger than the water supply tank. Liquid waste shall not be discharged from the retention tank when the MOBILE FOOD ESTABLISHMENT is in motion.

(B) All connections on the vehicle for servicing MOBILE FOOD ESTABLISHMENT waste disposal facilities shall be of a different size or type than those used for supplying potable water to the MOBILE FOOD ESTABLISHMENT. The waste connection shall be located to prevent contamination of the potable water system.

8-101.18 Mobile Food Service-Commissary, Base of Operations

(A) MOBILE FOOD ESTABLISHMENTS shall operate from a commissary or other fixed FOOD ESTABLISHMENT and shall report at least daily to such location for all supplies and for all cleaning and servicing operations.

(B) The commissary or other fixed FOOD ESTABLISHMENT used as a base of operation for MOBILE FOOD ESTABLISHMENTS shall be constructed and operated in compliance with the requirements of this ordinance.

8-101.19 Mobile Food Service-Servicing

Food, utensils, and single service items must be protected from environmental contaminants during servicing of a MOBILE FOOD ESTABLISHMENT.

8-101.20 Mobile Food Service-Servicing Operations

(A) Potable water servicing EQUIPMENT shall be installed according to LAW and shall be stored and handled in a way that protects the water and EQUIPMENT from contamination.

(B) The MOBILE FOOD ESTABLISHMENT'S liquid waste retention tank, where used, shall be thoroughly flushed, and drained during the servicing operation. All liquid waste shall be discharged to a sanitary SEWAGE disposal system in accordance with §5-104.12.

(C) MOBILE FOOD ESTABLISHMENTS shall report daily to a fixed FOOD ESTABLISHMENT for all FOOD, supplies, all interior and exterior cleaning, servicing operations, and waste disposal. MOBILE FOOD ESTABLISHMENTS shall not store POTENTIALLY HAZARDOUS FOOD on the vehicle during non-operating hours. MOBILE FOOD ESTABLISHMENTS shall have menus reviewed and approved by the REGULATORY AUTHORITY and shall be powered and constructed in accordance with a design reviewed and approved by the REGULATORY AUTHORITY prior to issuance of a FOOD PERMIT

CHAPTER 9
TEMPORARY FOOD SERVICE

9-101.11 General Information

A TEMPORARY FOOD ESTABLISHMENT shall comply with the requirements of this ordinance. The REGULATORY AUTHORITY may impose additional requirements to protect against health HAZARDS related to the conduct of the TEMPORARY FOOD ESTABLISHMENT, and may prohibit the sale of some or all POTENTIALLY HAZARDOUS FOOD. A VARIANCE may be granted from requirements of this ordinance as provided by Section 10-101.13.

9-101.13 Ice

ICE that is consumed or that contacts FOOD in TEMPORARY FOOD ESTABLISHMENTS shall be made under conditions meeting the requirements of this ordinance. The ICE shall be obtained only in chipped, crushed, or cubed form and in single-use safe plastic or wet-strength paper bags filled and sealed at the point of manufacture. The ICE shall be held in these bags until it is dispensed in a way that protects it from contamination.

9-101.14 Equipment

(A) EQUIPMENT shall be located and installed in a way that prevents FOOD contamination and that also facilitates cleaning the TEMPORARY FOOD ESTABLISHMENT.

(B) FOOD-CONTACT SURFACES or EQUIPMENT shall be protected from contamination by CONSUMERS and other contaminating agents. Effective shields for such EQUIPMENT shall be provided, as necessary, to prevent contamination.

9-101.15 Single Service, Single-Use Articles

All TEMPORARY FOOD ESTABLISHMENTS without effective facilities for cleaning and sanitizing TABLEWARE shall provide only SINGLE-SERVICE and SINGLE-USE ARTICLES for use by the CONSUMER.

9-101.16 Water

Enough potable water shall be available in the TEMPORARY FOOD ESTABLISHMENT for FOOD preparation, for cleaning and sanitizing UTENSILS and EQUIPMENT, and for hand washing. A heating facility capable of producing enough hot water for these purposes shall be provided on the premises.

9-101.17 Wet Storage

Storage of packaged FOOD in contact with water or undrained ice is prohibited. Wrapped sandwiches shall not be stored in direct contact with ice.

9-101.18 Waste

All SEWAGE, including liquid waste, shall be disposed of according to LAW.

9-101.19 Hand Washing

A convenient hand washing facility shall be available for EMPLOYEE hand washing. This facility shall consist, at least, of warm running water, soap, and individual paper towels.

9-101.20 Floors and Ceilings

(A) Booths must have overhead covers, such as tents, canopies, or ceilings made of wood, canvas, or other material, to protect FOOD from overhead contamination. Physical barriers such as counters or tables must be used to separate the FOOD service area from the customers.

CHAPTER 10
COMPLIANCE AND ENFORCEMENT

A. CODE APPLICABILITY

*10-101.11 Underlying Purpose; Administration; Additional Requirements*u

(A) The COMMISSIONER and the REGULATORY AUTHORITY shall apply and administer this ordinance to promote its underlying purpose of safeguarding public health and ensuring that FOOD is safe, UNADULTERATED, and HONESTLY PRESENTED when offered to the CONSUMER.

(B) The Board of Aldermen finds and declares that:

i) this ordinance is necessary to protect the public health, safety, welfare and peace.

ii) the effective administration of this ordinance will entail the exercise from time to time of administrative discretion.

iii) it is not possible to provide in legislation comprehensive rules for the appropriate exercise of administrative discretion in all circumstances relating to food preparation and handling.

iv) accordingly, it is appropriate to vest discretion in the COMMISSIONER and the REGULATORY AUTHORITY in circumstances where matters affecting safe food preparation and handling are not expressly addressed by this ordinance, and it is the intent of the Board of Aldermen, to the fullest extent permitted by law, to vest such discretion in the COMMISSIONER and the REGULATORY AUTHORITY, to be exercised in furtherance of the underlying purpose of this Ordinance.

(C) If necessary, to protect against public health HAZARDS or nuisances, the REGULATORY AUTHORITY may impose specific requirements in addition to the requirements contained in this ordinance.

(D) The REGULATORY AUTHORITY shall document the conditions that necessitate the imposition of additional requirements and the underlying public health rationale. The documentation shall be provided to the PERMIT applicant or PERMIT HOLDER and a copy shall be maintained in the REGULATORY AUTHORITY'S file for the FOOD ESTABLISHMENT.

10-101.12 Preexisting Facilities or Equipment

In enforcing the provisions of this ordinance, the REGULATORY AUTHORITY shall assess existing facilities or EQUIPMENT that were in use before the effective date of this ordinance based on the following considerations:

(1) Whether the facilities or EQUIPMENT are in good repair and capable of being maintained in a sanitary condition.

(2) Whether FOOD-CONTACT SURFACES comply with §4-101.11; and

(3) Whether the capacities of cooling, heating, and holding EQUIPMENT are sufficient to comply with §4-301.11

10-101.13 Variances: Modifications and Waivers

The COMMISSIONER may grant a VARIANCE by modifying or waiving requirements of this ordinance if in the opinion of the COMMISSIONER a health HAZARD or nuisance will not result from the VARIANCE. If a VARIANCE is granted, the REGULATORY AUTHORITY shall retain the information specified under §10-101.14 in its records for the FOOD ESTABLISHMENT.

10-101.14 Documentation of Proposed Variance and Justification

Before a VARIANCE from a requirement of this ordinance is granted, the following information shall be provided by the PERSON requesting the VARIANCE and retained in the REGULATORY AUTHORITY'S file on the FOOD ESTABLISHMENT:

(A) A statement of the proposed VARIANCE of the ordinance requirement citing relevant ordinance section numbers;

(B) An analysis of the rationale for how the potential public health HAZARDS or nuisances addressed by the relevant ordinance sections will be alternatively addressed by the proposal; and

(C) A HACCP PLAN if required as specified under 10-101.18(A) that includes the information specified under §10-101.19 as it is relevant to the VARIANCE requested.

10-101.15 Conformance with Approved Procedures

If the COMMISSIONER grants a VARIANCE pursuant to §10-101.13, or a HACCP PLAN is otherwise required as specified under §10.101.18, the PERMIT HOLDER shall:

(A) Comply with the HACCP PLAN and procedures that are submitted as specified under §10-101.19 and approved as a basis for the modification or waiver; and

(B) Maintain and provide to the REGULATORY AUTHORITY, upon request, records specified under 10-101.19 that demonstrate full implementation of the HACCP plan:

(1) Procedures for monitoring the CRITICAL CONTROL POINTS,

(2) Monitoring of the CRITICAL CONTROL POINTS,

(3) Verification of the effectiveness of the operation or process, and

(4) Necessary corrective actions if there is failure at a CRITICAL CONTROL POINT.

B. PLAN SUBMISSION AND APPROVAL

10-101.16 When Facility and Operating Plans Are Required

A PERMIT applicant or PERMIT HOLDER shall submit to the REGULATORY AUTHORITY properly prepared plans and specifications for review and approval before:

(1) The construction of a FOOD ESTABLISHMENT,

(2) The conversion of an existing structure for use as a FOOD ESTABLISHMENT, or

(3) The remodeling of a FOOD ESTABLISHMENT or a change of type of FOOD ESTABLISHMENT or FOOD operation as specified under 10-101.27 if the REGULATORY AUTHORITY determines that plans and specifications are necessary to ensure compliance with this ordinance.

10-101.17 Contents of the Plans and Specifications

The plans and specifications for a FOOD ESTABLISHMENT, including a FOOD ESTABLISHMENT specified under §10-101.18, shall include, as required by the REGULATORY AUTHORITY based on the type of operation, type of FOOD preparation and FOODS prepared, the following information to demonstrate conformance with the provisions of this ordinance:

(1) Intended menu;

(2) Anticipated volume of FOOD to be stored, prepared, and sold or served;

(3) Proposed layout, mechanical schematics, construction materials, and finish schedules;

(4) Proposed EQUIPMENT types, manufacturers, model numbers, locations, dimensions, performance capacities, and installation specifications;

(5) Evidence that standard procedures that ensure compliance with the requirements of this ordinance have been developed or are being developed; and

(6) Other information that may be required by the REGULATORY AUTHORITY for the proper review of the proposed construction, conversion or modification, and procedures for operating a FOOD ESTABLISHMENT.

10-101.18 When a HACCP PLAN is Required

(A) Before engaging in an activity that requires a HACCP PLAN, a PERMIT applicant or PERMIT HOLDER shall submit to the REGULATORY AUTHORITY for approval a properly prepared HACCP PLAN as specified under §10-101.19 and the relevant provisions of this ordinance if:

(1) Submission of a HACCP PLAN is required according to LAW;

(2) A VARIANCE is required as specified under 3-401.11(D)(4), §3-502.11, or 4-204.110(B);

(3) The REGULATORY AUTHORITY determines that a FOOD preparation or processing method requires a VARIANCE based on a plan submittal specified under §10-101.17, an inspection finding, or a VARIANCE request.

(B) A PERMIT applicant or PERMIT HOLDER shall have a properly prepared HACCP PLAN as specified under §3-502.12.

10-101.19 Contents of a HACCP PLAN

For a FOOD ESTABLISHMENT that is required under §10-101.18 to have a HACCP PLAN, the plan and specifications shall indicate:

(1) A categorization of the types of POTENTIALLY HAZARDOUS FOODS that are specified in the menu such as soups and sauces, salads, and bulk solid FOODS such as MEAT roasts, or of other FOODS that are specified by the REGULATORY AUTHORITY;

(2) A flow diagram by specific FOOD or category type identifying CRITICAL CONTROL POINTS and providing information on the following:

(a) Ingredients, materials, and EQUIPMENT used in the preparation of that FOOD;

(b) Formulations or recipes that delineate methods and procedural control measures that address the FOOD safety concerns involved;

(3) FOOD EMPLOYEE and supervisory training plan that addresses the FOOD safety issues of concern;

(4) A statement of standard operating procedures for the plan under consideration including clearly identifying:

(a) Each CRITICAL CONTROL POINT,

(b) The CRITICAL LIMITS for each CRITICAL CONTROL POINT,

(c) The method and frequency for monitoring and controlling each CRITICAL CONTROL POINT by the FOOD EMPLOYEE designated by the PERSON IN CHARGE,

(d) The method and frequency for the PERSON IN CHARGE to routinely verify that the FOOD EMPLOYEE is following standard operating procedures and monitoring CRITICAL CONTROL POINTS,

(e) Action to be taken by the PERSON IN CHARGE if the CRITICAL LIMITS for each CRITICAL CONTROL POINT are not met,

(f) Records to be maintained by the PERSON IN CHARGE to demonstrate that the HACCP PLAN is properly operated and managed; and

(g) Additional scientific data or other information, as required by the REGULATORY AUTHORITY, supporting the determination that FOOD safety is not compromised by the proposal.

10-101.21 Trade Secrets

To the extent permitted by Missouri LAW, the REGULATORY AUTHORITY shall treat as confidential information that meets the criteria specified in LAW for a trade secret and is contained on inspection report forms and in the PLANS and specifications submitted as specified under §10-101.17, 10-101.18 and §10-101.19.

10-101.22 Pre-operational Inspections

The REGULATORY AUTHORITY shall conduct one or more pre-operational PLAN inspection to verify that a FOOD ESTABLISHMENT is constructed and equipped in accordance with the APPROVED PLANS and APPROVED modifications of those PLANS and has established standard operating procedures as specified under 10-101.17(5).

C. PERMIT TO OPERATE

10-101.23 Prerequisite for Operation

It shall be unlawful for any PERSON to operate a FOOD ESTABLISHMENT within the City of St Louis who does not possess a valid PERMIT issued to such PERSON by the COMMISSIONER or renewed for such PERSON.

10-101.24 Application Procedure

(A) Any person desiring to operate a FOOD ESTABLISHMENT or a TEMPORARY FOOD ESTABLISHMENT shall make written application for a PERMIT on forms provided by the COMMISSIONER. FOOD ESTABLISHMENTS outside the City of St. Louis which desire to serve FOOD within the limits of the City of St. Louis must apply for and receive a FOOD PERMIT and business license from the City of St. Louis and conform to the provisions of this ordinance.

(B) An applicant shall submit an application for a PERMIT at least 30 calendar days before the date planned for opening a FOOD ESTABLISHMENT or the expiration date of the current PERMIT for an existing facility, or at least two business days prior to the operation of a TEMPORARY FOOD ESTABLISHMENT.

10-101.25 Qualifications and Responsibilities of Applicants

To qualify for a PERMIT, an applicant shall:

(1) Be an owner of the FOOD ESTABLISHMENT or an officer of the legal owner;

(2) Comply with the requirements of this ordinance;

(3) As specified under §10-101.40, agree to allow access to the FOOD ESTABLISHMENT and to provide required information; and

(4) Pay the applicable PERMIT fees at the time the application is submitted.

10-101.26 Contents of Applications

(A) Any application shall include:

(1) The name, taxpayer identification number or social security number, mailing address, telephone number, and signature of the PERSON applying for the PERMIT and the name, mailing address, and location of the FOOD ESTABLISHMENT;

(2) Information specifying whether the FOOD ESTABLISHMENT is owned by an association, corporation, individual, partnership, or other specified type of legal entity;

(3) Federal identification number (if other than an individual);

(4) A listing of the officers (Firm or Corporation); and

(5) A statement specifying whether the FOOD ESTABLISHMENT is mobile or stationary.

(B) Mobile units must also submit:

(1) A letter of permission from the FOOD ESTABLISHMENT that will operate as the vehicle's servicing area;

(2) A copy of the latest inspection report of the FOOD ESTABLISHMENT that will operate as the vehicle's servicing area;

(3) The design of the mobile FOOD ESTABLISHMENT; and

(4) A proposed menu.

(C) Stationary establishments must also submit:

(1) a copy of a current occupancy permit for a new or remodeled FOOD ESTABLISHMENT;

(2) In new or remodeled establishments, a letter of approval from the REGULATORY AUTHORITY, indicating that plans have been reviewed and conform to the requirements of this ordinance;

(3) A statement specifying whether the FOOD ESTABLISHMENT is temporary or permanent; and

(4) If the application is for a TEMPORARY FOOD ESTABLISHMENT, its name and the dates, time, and location of the proposed operation.

(D) If the application is for either a TEMPORARY or permanent FOOD ESTABLISHMENT, the REGULATORY AUTHORITY shall make a PERMIT approval inspection to determine compliance with the provisions of this ordinance.

10-101.27 New, Converted, or Remodeled Establishments

For FOOD ESTABLISHMENTS that are required to submit plans as specified under §10-101.16 the REGULATORY AUTHORITY shall issue a permit to the applicant after:

(1) A properly completed application is submitted;

(2) The required fee is submitted;

(3) The required plans, specifications, and information are reviewed and APPROVED; and

(4) A preoperational inspection as specified in §10-101.22 shows that the establishment is built or remodeled in accordance with the approved plans and specifications and that the establishment is in compliance with this ordinance.

10-101.28 Plan Review For Future Construction

(A) When a FOOD ESTABLISHMENT is hereafter constructed or extensively remodeled, or when an existing structure is converted for use as a FOOD ESTABLISHMENT properly prepared plans and specifications for such construction, remodeling, alterations, location, size and type of fixed EQUIPMENT and facilities shall be submitted to the REGULATORY AUTHORITY for approval before such work is begun, and an application for a new PERMIT shall be submitted.

(B) The REGULATORY AUTHORITY shall approve (Reference 10.101.36 and 10.101.30(J)(2)) such plans only if they comply with the requirements of this ordinance, but no such approval shall constitute approval under any other applicable LAW, ordinance or regulation governing the use, construction, or occupancy of property. A fee shall be assessed for the plan review:

(a) Sixty dollars ($60) [Seventy-five dollars ($75.00) on or after 7/1/2022] if the establishment is determined to be in the low priority category

(b) Eighty dollars ($80) [One hundred dollars ($100.00) on or after 7/1/2022] if the establishment is determined to be in the moderate priority category;

(c) One hundred dollars ($100) [One hundred twenty-five dollars ($125.00) on or after 7/1/2022] if the establishment is determined to be in the high priority category.

10-101.29 Existing Establishments, Permit Renewal, and Change of Ownership

The COMMISSIONER may renew a PERMIT for an existing FOOD ESTABLISHMENT or may issue a PERMIT to a new owner of an existing FOOD ESTABLISHMENT after a properly completed application is submitted, reviewed, and approved, the fees are paid, and an inspection shows that the establishment is in compliance with this ordinance.

10-101.30 Issuance of Permits and Fees

(A) All PERMITS shall be issued and/or revoked by the COMMISSIONER.

(B) All PERMITS other than those for TEMPORARY FOOD ESTABLISHMENTS are renewable annually, upon submission of updated contact information for the PERMIT HOLDER on a standardized renewal form, payment of the appropriate annual fee, if any, and determination of the COMMISSIONER that all other requirements of this ordinance are met.

(C) Applications for new annually renewable PERMITS are valid for only ninety (90) calendar days and will be filed without further action if the PERMIT is not APPROVED within that time. Any fee accompanying the application is non-refundable.

(D) Annual PERMITS expire on the last day of the twelfth month after the PERMIT is originally issued. PERMIT renewal applications are due on or before the expiration date of the PERMIT.

(E) The late filing charge for not timely filing an application to renew an annual PERMIT shall be fifty dollars ($50.00) per day after the PERMIT expires. Failure to file an application to renew an annual PERMIT by the fifteenth day after the PERMIT expires will result in the COMMISSIONER issuing an ORDER OF CESSATION to the FOOD ESTABLISHMENT, which will remain in effect until the PERMIT renewal is submitted and all applicable renewal and late filing charges are paid.

(F) Permits for TEMPORARY FOOD ESTABLISHMENTS shall be issued for a stipulated time frame as defined. PERMITS shall be applied for at least two (2) business days prior to the operation of the TEMPORARY FOOD ESTABLISHMENT unless such deadline is waived by the REGULATORY AUTHORITY and an expedited permit fee often dollars ($10) is added.

(G) The License Collector shall issue a restaurant, alcoholic beverage or similar business license to a person only upon presentation of the APPROVED inspection report from the COMMISSIONER that all provisions of this ordinance have been met.

(H) The appropriate fee must accompany all applications for PERMITS.

(I) All PERMIT fees shall be in the form of a business check, cashier's check or money order payable to "Health COMMISSIONER of the City of St. Louis". The COMMISSIONER may decide to accept other methods of payment when feasible.

(J) PERMIT Fee Amounts shall be as follows:

(1) The Initial Fee for a PERMIT for a new FOOD ESTABLISHMENT shall be one hundred sixty dollars ($160) [two hundred dollars ($200.00) on or after 7/1/2022];

(2) PERMIT Renewal Fees for FOOD ESTABLISHMENTS shall be based on a priority assessment of each establishment conducted annually at the time of PERMIT renewal. Priority assessments shall be based on the discretion of the Commissioner and REGULATORY AUTHORITY, in accordance with 10-101.36. Such fees shall be:

(a) One hundred thirty dollars ($130) [One hundred sixty-five dollars ($165.00) on or after 7/1/2022] if the establishment is determined to be in the low priority category;

(b) Two hundred twenty dollars ($220) [Two hundred seventy-five dollars ($275.00) on or after 7/1/2022] if the establishment is determined to be in the moderate priority category;

(c) Three hundred ten dollars ($310) [Three hundred ninety dollars ($390.00) on or after 7/1/2022] if the establishment is determined to be in the high priority category.

(3) TEMPORARY PERMIT fees & PERMIT waiver shall be as follows:

(a) Traditional Temporary Food Permit fees shall be fifty dollars ($50) per day per vendor for each proposed day of operation.

(b) Specialty Food Temporary Food Permit fees shall be one hundred dollars ($100) annually.

(c) LILA Community Temporary Food Permit fees shall be twenty-five dollars ($25) per day for the overall sponsor and five dollars ($5) per day for each participating vendor, or twenty-five dollars ($25) per day for a vendor (vendor must live in LILA census tract), if there is no sponsor.

(d) Farmers Market Temporary Food Permit fees shall be three hundred fifty dollars ($350) for the overall organizer plus one hundred dollars ($100) for each participating vendor each year. The overall organizer gathers and pays the one hundred dollars ($100) fee for each participating vendor when applying for the permit.

(e) Sponsored Temporary Food Permit fees shall be fifty dollars ($50) per day for the overall sponsor and twenty dollars ($20) per day for each participating vendor. The overall sponsor gathers and pays the twenty dollars ($20) per day fee for each participating vendor when applying for the permit.

(f) Charitable Feeding Temporary Food Permit Waiver fees shall be twenty-five dollars ($25) per day for the overall sponsor and five dollars ($5) per day for each participating vendor, or twenty-five dollars ($25) per day for a vendor, if there is no sponsor.

(g) Cottage Food Production Operation Temporary Food Permit Waiver fees shall be zero dollars ($0).

(h) With the exception of Cottage Food Production Waiver applicants, all TEMPORARY FOOD PERMIT applicants shall complete a TEMPORARY FOOD PERMIT training before issuance of a permit.

(4) GROCERY STORE PERMIT fees shall be two hundred thirty-five dollars ($235) [two hundred ninety-five dollars ($295) on or after 7/1/2022].

(K) A summary of permits and fees is attached hereto as Exhibit A.

10-101.31 Denial of Application for Permit, Notice.

If an application for a PERMIT to operate is denied, the REGULATORY AUTHORITY shall provide the applicant with a notice that includes:

(1) The specific reasons and ordinance citations for the PERMIT denial; and

(2) The actions, if any, that the applicant must take to qualify for a PERMIT.

10-101.32 Revocation of Permits

(A) The COMMISSIONER may revoke a PERMIT:

(1) For serious or repeated violations of any of the requirements of this ordinance;

(2) For failure to pay applicable fees or charges under this ordinance or otherwise required by LAW;

(3) For materially false statements in an application for a PERMIT; or

(4) For failure to have at least one representative who possesses a FOOD Protection Manager Certificate present during hours of operation.

(B) Process for Revocation

(1) If it has been determined that there is cause to revoke a PERMIT, the COMMISSIONER shall provide an opportunity for a hearing by notifying the PERMIT HOLDER or PERSON IN CHARGE of

the FOOD ESTABLISHMENT, in writing, of the reason or reasons for a hearing in which the PERMIT is subject to revocation.

(2) Notice shall be deemed received where there is actual delivery of written notice by the REGULATORY AUTHORITY to the PERMIT HOLDER or PERSON IN CHARGE or when the written notice is sent by certified mail. A copy of the notice shall be filed in the records of the REGULATORY AUTHORITY.

(3) If the COMMISSIONER'S hearing results in a determination that the PERMIT should be revoked, the PERMIT shall immediately be suspended, and all operations at the establishment shall cease.

(4) A request for an appeal of a revocation determination can be filed with the Board of Public Service within 10 days. If no appeal to the Board of Public Service is made, the PERMIT shall be revoked and void without further action.

(5) The hearing of the appeal provided for by (B) (4) shall be conducted by the Board of Public Service at a date and time designated by such Board. The Board shall make a finding based upon recorded evidence from the hearing. The Board shall furnish its decision to the COMMISSIONER and the PERMIT HOLDER in writing.

(6) The PERMIT suspension shall remain in effect until the Board of Public Service hearing is concluded and the PERMIT HOLDER is notified of the decision. The decision of the Board of Public Service shall be final.

(C) Whenever a revocation has become final, the PERMIT HOLDER whose PERMIT was revoked may reapply for a PERMIT after the expiration of ninety (90) days from the date of revocation. A person reapplying for a PERMIT after a revocation shall pay all applicable fees for a new PERMIT.

10-101.33 Responsibilities of the Permit Holder

Upon acceptance of a PERMIT issued by the REGULATORY AUTHORITY, the PERMIT HOLDER in order to retain the PERMIT shall:

(1) Post the PERMIT in a location in the FOOD ESTABLISHMENT that is conspicuous to CONSUMERS. Failure to post said PERMIT shall be cause for suspension or revocation of the PERMIT;

(2) Comply with the applicable provisions of this ordinance, including but not limited to the conditions of a granted VARIANCE as specified under §10-101.15, and APPROVED PLANS as specified under §10-101.17;

(3) If a FOOD ESTABLISHMENT is required under §10-101.18 to operate under a HACCP PLAN, comply with the PLAN as specified under §10-101.15;

(5) Immediately contact the REGULATORY AUTHORITY to report an illness of a FOOD employee or CONDITIONAL EMPLOYEE as specified under §2-201.11;

(6) Immediately discontinue operations and notify the REGULATORY AUTHORITY if an IMMINENT HEALTH HAZARD may exist as specified under §10-101.49;

(7) Allow representatives of the REGULATORY AUTHORITY access to the FOOD ESTABLISHMENT as specified under §10-101.40;

(8) Except as specified under (9) of this section, replace existing facilities and EQUIPMENT specified in §10-101.11 with facilities and EQUIPMENT that comply with this ordinance if:

(a) The REGULATORY AUTHORITY directs the replacement because the facilities and EQUIPMENT constitute a public health HAZARD or nuisance or no longer comply with the criteria upon which the facilities and EQUIPMENT were accepted,

(b) The REGULATORY AUTHORITY directs the replacement of the facilities and EQUIPMENT because of a change of ownership, or

(c) The facilities and EQUIPMENT are replaced in the normal course of operation;

(9) Comply with directives of the REGULATORY AUTHORITY, including time frames for corrective actions specified in inspection reports, notices, orders, warnings, and other directives issued by the REGULATORY AUTHORITY in regard to the PERMIT HOLDER's establishment or in response to community emergencies;

(10) Accept notices issued and served by the REGULATORY AUTHORITY according to LAW; and;

(11) Be subject to administrative, civil, injunctive, and criminal remedies or penalties authorized in LAW for failure to comply with this ordinance or a directive of the REGULATORY AUTHORITY, including time frames for corrective actions specified in inspection reports, notices, orders, warnings, and other directives.

10-101.34 Permits Not Transferable

Only a PERSON who complies with the requirements of this chapter shall be entitled to receive and retain a PERMIT.

A PERMIT may not be transferred from one PERSON to another PERSON, from one FOOD ESTABLISHMENT to another, or from one type of operation to another if the FOOD operation changes from the type of operation specified in the application as specified under 10.101.26 (C) and (D) and the change in operation is not approved.

D. INSPECTION AND CORRECTION OF VIOLATIONS

10-101.35 Routine Inspections

Following the initial inspection of a FOOD ESTABLISHMENT and the issuance of a permit by the COMMISSIONER, the REGULATORY AUTHORITY shall routinely inspect such establishment and shall make as many additional inspections and reinspections as are necessary to ensure that all provisions of this ordinance have been met.

(A) Establishment inspection frequency shall be based on a priority assessment of each establishment conducted annually at the time of PERMIT renewal.

(B) Priority assessments shall be based on the order of the COMMISSIONER or the determination of the REGULATORY AUTHORITY.

(1) Establishments that are considered to be low priority shall be inspected at least annually.

(2) Establishments that are considered to be medium priority shall be inspected at least twice annually, or every 180 days.

(3) Establishments that are considered to be high priority shall be inspected at least three times annually, or every 120 days.

(4) Establishments that are classified as Grocery Stores shall be inspected at least annually.

10-101.36 Performance and Risk-Based Inspections

Within the parameters specified in §10-101.35, the REGULATORY AUTHORITY shall prioritize, and conduct more frequent inspections, based upon its assessment of a FOOD ESTABLISHMENT's history of compliance with this ordinance and the establishment's potential as a vector of FOOD-borne illness by evaluating:

(A) Past performance, for nonconformance with ordinance or HACCP PLAN requirements that are critical;

(B) Past performance, for FOOD-borne illness complaints investigated and found to be valid;

(C) The HAZARDS associated with the particular FOODS that are prepared, stored, or served;

(D) The type of operation including the methods and extent of FOOD storage, preparation, and service;

(E) The number of people served; and

(F) Whether the population served is a HIGHLY SUSCEPTIBLE POPULATION.

10-101.37 Grading of Food Establishments and Grocery Stores

(A) Grades of establishments shall be as follows, provided, however, that the COMMISSIONER may annually set and establish the method of determining specific grades, based on CRITICAL ITEM violations on a numerical scale. The grade of any FOOD ESTABLISHMENT which is changed as a result of an inspection shall be appropriately adjusted by replacing the grade decal(s) of the establishment:

(1) Grade (A): An establishment with two or fewer CRITICAL ITEM violations or receiving a score of 85 to 100;

(2) Grade (B): An establishment with three or more CRITICAL ITEM violations or receiving a score of 70 to 84, or an establishment that has failed to correct any violation within the time allotted by the REGULATORY AUTHORITY;

(3) Grade (C): An establishment that has failed to correct any violation(s) that contributed to a grade (B) within the time allotted by the REGULATORY AUTHORITY, or which receives a score of 69 or below.

(B) Upon inspection of any operating FOOD ESTABLISHMENT, a grade decal denoting the grade of the establishment based on the above criteria shall be immediately posted, provided that prior to the posting of a grade lower than the existing grade by the REGULATORY AUTHORITY, the inspection report form will be reviewed with the PERSON IN CHARGE; this review will be for the purpose of affording the operator of the establishment a final opportunity to discuss the inspection findings. At a re-inspection, the REGULATORY AUTHORITY may if inspection findings warrant, lower the grade without further review.

(C) The time frame for re-inspection after a lowered grade will be a maximum of ten working days when no CRITICAL ITEM violations exist or a maximum of two working days if a CRITICAL ITEM violation exists.

An initial follow-up to an inspection will not result in an additional fee. If repeated follow-up inspections are necessary to gain compliance with the same violation(s) observed during the inspection and initial follow-up inspection, this will result in a fee of fifty dollars ($50) [seventy-five dollars ($75.00) on or after 7/1/2022] for each follow-up inspection beyond the initial follow-up inspection.

10-101.38 Location of Grade Decal

(A) A FOOD ESTABLISHMENT shall display, in a place designated by the REGULATORY AUTHORITY, a grade decal approved by the COMMISSIONER stating the grade of the establishment, except that TEMPORARY FOOD ESTABLISHMENTS shall not be subject to grading.

(B) The grade decal shall be prominently displayed in a conspicuous place at the main entrance of the establishment and at the serving window for drive-through service where it can be easily seen by the public.

(C) The grade decal must not be defaced, hidden from public view or removed, except by the REGULATORY AUTHORITY. If the grade decal has been defaced, hidden from public view or removed by someone other than the REGULATORY AUTHORITY, the establishment will be subject to immediate downgrading and shall be fined five hundred dollars ($500) and/or suspension of the PERMIT by the COMMISSIONER.

10-101.39 Competency of Inspectors

An authorized representative of the REGULATORY AUTHORITY who inspects a FOOD ESTABLISHMENT or conducts PLAN review for compliance with this ordinance shall have the knowledge, skills, and ability to adequately perform the required duties.

10-101.40 Access to Establishments

The COMMISSIONER or any authorized employee of the REGULATORY AUTHORITY, after proper identification, shall be permitted to enter any FOOD ESTABLISHMENT at any reasonable time for the purpose of making inspections to determine compliance with this ordinance. Such inspector shall be permitted to examine the records of the establishment to obtain pertinent information pertaining to FOOD and supplies purchased, received, used, persons employed, and to determine the PERMIT fee, if applicable.

10-101.41 Refusal of Access

Interference with a representative of the REGULATORY AUTHORITY, physically or verbally, in the performance of official duties including refusal to allow access to the premises in order to conduct an inspection, may result in the COMMISSIONER issuing an ORDER OF CESSATION suspending a PERMIT for a period of time as determined appropriate by the COMMISSIONER.

10-101.42 Refusal; Reporting

If after a representative of the REGULATORY AUTHORITY presents credentials, provides notice as specified under §10-101.40 and explains the authority upon which access is requested, the PERSON IN CHARGE continues to refuse access, the representative of the REGULATORY AUTHORITY shall provide details of the denial of access on an inspection report form.

10-101.43 Suspension of Permits

(A) The COMMISSIONER may issue an ORDER OF CESSATION suspending a PERMIT for a period of time as determined appropriate by the COMMISSIONER.

(B) Upon suspension of a PERMIT, the establishment must cease operation immediately and remain closed for at least twenty-four (24) hours before reopening regardless of whether the violations which caused the suspension are abated or not.

(C) The ORDER OF CESSATION shall specify the reason for the suspension. It shall remain in effect until lifted by the REGULATORY AUTHORITY or superseded by an order of revocation issued by the COMMISSIONER.

(D) An ORDER OF CESSATION may be issued for any of the following causes:

(1) The operation of the FOOD ESTABLISHMENT or TEMPORARY FOOD ESTABLISHMENT constitutes a HAZARD to public health;

(2) Interference with a representative of the REGULATORY AUTHORITY, physically or verbally, in the performance of official duties including refusal to allow access to the premises in order to conduct an inspection;

(3) Failure to possess a FOOD Protection Manager Certificate as required by Section §2-102.12;

(4) Repeated health violations which caused the establishment to receive a lowered grade two or more times in a twelve (12) month period;

(5) Failure to attend a COMMISSIONER's hearing or a conference proposed by the REGULATORY AUTHORITY to informally discuss resolution of pending issues (an "Administrative Conference") for any reason, when requested to do so;

(6) The operation of the FOOD ESTABLISHMENT or TEMPORARY FOOD ESTABLISHMENT without an appropriate issued PERMIT;

(7) Failure to possess a current valid restaurant, alcoholic beverage or other business license as required by LAW; or

(8) As provided in §10-101.51.

(E) The order of the COMMISSIONER suspending a PERMIT under this section shall be final.

(F) Failure to correct the cause of a suspension of a PERMIT within the time specified by the COMMISSIONER shall cause the revocation of the PERMIT.

(G) Operating a FOOD ESTABLISHMENT or TEMPORARY FOOD ESTABLISHMENT without a permit shall be fined five hundred dollars ($500).

10-101.44 Documenting Information and Observations

The representative of the REGULATORY AUTHORITY who conducts an inspection shall document on an inspection report form:

(1) Administrative information about the FOOD ESTABLISHMENT'S legal identity, street and mailing addresses, type of establishment and operation as specified under 10-101-26, inspection date, and other information such as type of water supply and SEWAGE disposal, status of the PERMIT, and personnel certificates that may be required; and

(2) Specific factual observations of violative conditions or other deviations from this ordinance that require correction by the PERMIT HOLDER including:

(a) Failure of the PERSON IN CHARGE to demonstrate the knowledge of FOOD borne illness prevention, application of HACCP principles, and the requirements of this ordinance as specified under §2-102.11;

(b) Failure of FOOD EMPLOYEES, CONDITIONAL EMPLOYEES, and the PERSON IN CHARGE to report a disease or medical condition as specified under §2-201.11(B) and 2-201.11(D);

(c) Nonconformance with CRITICAL ITEMS as established by the COMMISSIONER;

(d) Failure of the appropriate FOOD EMPLOYEES to demonstrate their knowledge of, and ability to perform in accordance with, the procedural, monitoring, verification, and corrective action practices required by the REGULATORY AUTHORITY as specified under §10-101.15;

(e) Failure of the PERSON IN CHARGE to provide records required by the REGULATORY AUTHORITY for determining conformance with a HACCP PLAN as specified under 10-101.19(D)(6); and

(f) Nonconformance with CRITICAL LIMITS of a HACCP PLAN.

10-101.45 Specifying Time Frame for Corrections

The REGULATORY AUTHORITY shall specify on the inspection report form the time frame for correction of the violations as specified under §§10-101.49, 10-101.51, and 10-101.52.

10-101.46 Issuing Report and Obtaining Acknowledgment of Receipt

At the conclusion of the inspection and according to LAW, the representative of the REGULATORY AUTHORITY shall provide a copy of the completed inspection report and the notice to correct violations to the PERMIT HOLDER or to the PERSON IN CHARGE, and request a signed acknowledgment of receipt.

10-101.47 Refusal to Sign Acknowledgment

The representative of the REGULATORY AUTHORITY shall:

(A) Inform a PERSON who declines to sign an acknowledgment of receipt of inspectional findings as specified in §10-101.46 that:

(1) An acknowledgment of receipt is not an agreement with findings;

(2) Refusal to sign an acknowledgment of receipt will not affect the PERMIT HOLDER's obligation to correct the violations noted in the inspection report within the time frames specified; and

(3) A refusal to sign an acknowledgment of receipt will be noted in the inspection report and conveyed to the REGULATORY AUTHORITY's historical record for the establishment.

(B) After the representative of the REGULATORY AUTHORITY has completed (A)(1)—(3), shall then make a final request that the PERSON IN CHARGE sign an acknowledgment receipt of inspection findings.

10-101.48 Public Information

Except as specified in §10-101.21, the REGULATORY AUTHORITY shall treat the inspection report as a public document and shall make it available for disclosure to a person upon written request as provided in LAW.

10-101.49 Ceasing Operations and Reporting

(A) Except as specified in B) of this section, a PERMIT HOLDER shall immediately discontinue operations and notify the REGULATORY AUTHORITY if an IMMINENT HEALTH HAZARD may exist because of an emergency such as a fire, flood, extended interruption of electrical or water service, SEWAGE backup, misuse of poisonous or toxic materials, onset of an apparent FOOD-borne illness outbreak, gross insanitary occurrence or condition, or other circumstance that may endanger public health.

(B) A PERMIT HOLDER need not discontinue operations in an area of an establishment that is unaffected by the IMMINENT HEALTH HAZARD.

10-101.50 Resumption of Operations.

If operations are discontinued as specified under §10-101.49 or otherwise according to LAW, the PERMIT HOLDER shall obtain approval from the REGULATORY AUTHORITY before resuming operations.

10-101.51 Violation of Critical Item

(A) CRITICAL ITEM violations shall be corrected and re-inspected within a period not to exceed two working days. Failure to correct said violations may result in posting of a lowered grade.

(B) Whenever an establishment is required under the provisions of this section to cease operations, the establishment shall remain closed until all CRITICAL ITEM violations are abated. It shall not resume operations until such time as a re-inspection determines that conditions responsible for the requirement to cease operations no longer exist. Opportunity for reinspection shall be offered immediately after the expiration of the date of the ORDER OF CESSATION, upon request of the owner or operator.

(C) In the case of TEMPORARY FOOD ESTABLISHMENTS, all CRITICAL ITEM violations shall be corrected immediately, or the COMMISSIONER may immediately issue an ORDER OF CESSATION to the FOOD service operation.

(D) Verification and Documentation of Correction.

(1) After observing at the time of inspection a correction of a violation of a CRITICAL ITEM or HACCP PLAN deviation, a representative of the REGULATORY AUTHORITY shall enter the violation and information about the corrective action on the inspection report.

(2) As specified under 10-101.51(D)(1), after receiving notification that the PERMIT HOLDER has corrected a violation of a CRITICAL ITEM or HACCP PLAN deviation, or at the end of the specified period of time, the REGULATORY AUTHORITY shall verify correction of the violation or deviation, document the information on an inspection report, and enter the report in the REGULATORY AUTHORITY'S records.

(3) Failure to comply within a time limit for corrections may require that the establishment immediately cease FOOD service operations or receive a lowered grade. An opportunity for appeal from the inspection findings will be provided if a written request for a hearing is filed with the COMMISSIONER within ten days.

If a request for a hearing is received, it shall be held within five days of receipt of that request.

10-101.52 Noncritical Violation - Time Frame for Correction

(A) Except as specified in (B) of this section, the PERMIT HOLDER shall correct noncritical violations by a date and time agreed to or specified by the REGULATORY AUTHORITY.

(B) The REGULATORY AUTHORITY may approve a compliance schedule that extends beyond the time limits specified under (A) of this section if a written schedule of compliance is submitted by the PERMIT HOLDER and no health HAZARD exists or will result from allowing an extended schedule for compliance.

E. PREVENTION OF FOODBORNE DISEASE TRANSMISSION BY EMPLOYEES

10-101.54 Prevention of Foodborne Disease Transmission by Employees - Investigation and Control

The REGULATORY AUTHORITY shall act when it has reasonable cause to believe that a FOOD EMPLOYEE or CONDITIONAL EMPLOYEE has possibly transmitted disease, may be infected with a disease in a communicable form that is transmissible through FOOD, may be a carrier of infectious agents that cause

a disease that is transmissible through FOOD, or is affected with a boil, an infected wound, or acute respiratory infection, by:

(A) Securing, subject to applicable LAW, a confidential medical history of the FOOD EMPLOYEE or CONDITIONAL EMPLOYEE suspected of transmitting disease or making other investigations as deemed appropriate; and

(B) Requiring appropriate medical examinations, including collection of specimens for laboratory analysis, of a suspected FOOD EMPLOYEE or CONDITIONAL EMPLOYEE.

10-101.55 Restrictions or Exclusion of Food Employee, or Summary Suspension of Permit

Based on the findings of an investigation related to a FOOD EMPLOYEE or CONDITIONAL EMPLOYEE who is suspected of being infected or diseased, the REGULATORY AUTHORITY may issue an order to the suspected FOOD EMPLOYEE, CONDITIONAL EMPLOYEE or PERMIT HOLDER, instituting one or more of the following control measures:

(A) restricting the FOOD EMPLOYEE or CONDITIONAL EMPLOYEE;

(B) excluding the FOOD EMPLOYEE or CONDITIONAL EMPLOYEE; or

(C) closing the FOOD ESTABLISHMENT by summarily suspending a PERMIT to operate in accordance with this ordinance and other applicable LAW.

10-101.56 Procedure when Infection is Suspected or there is No Proof of Hepatitis A Vaccine

When the COMMISSIONER has reasonable cause to suspect possibility of disease transmission from any FOOD ESTABLISHMENT EMPLOYEE, or finds that the establishment proprietors have failed to comply with the requirements of §2-201.14 with respect to an EMPLOYEE, the COMMISSIONER shall secure a morbidity history of the suspected EMPLOYEE, or make such other investigation as may be indicated and take appropriate action. The COMMISSIONER may, in the exercise of the COMMISSIONER's discretion, require any or all of the following measures:

(A) The immediate exclusion of the EMPLOYEE from all FOOD ESTABLISHMENTS;

(B) The immediate closure of the FOOD ESTABLISHMENT concerned until, in the opinion of the COMMISSIONER, no further danger of disease outbreak exists;

(C) Restriction of the EMPLOYEE'S services to one or more areas of the establishment where there would be no danger of transmitting disease; and

(D) Adequate medical and laboratory examinations of the EMPLOYEE or EMPLOYEES, and of their body discharges.

10-101.57 Restriction or Exclusion Order: Warning or Hearing Not Required, Information Required in Order

Based on the findings of the investigation as specified in §10-101.54 and to control disease transmission, the REGULATORY AUTHORITY may issue an order of restriction or exclusion to a suspected FOOD EMPLOYEE or the PERMIT HOLDER without prior warning, notice of a hearing, or a hearing if the order:

(A) States the reasons for the restriction or exclusion;

(B) States the evidence that the FOOD EMPLOYEE or PERMIT HOLDER shall provide in order to demonstrate that the reasons for the restriction or exclusion are eliminated;

(C) States that the suspected FOOD EMPLOYEE or the PERMIT HOLDER may request an appeal hearing by submitting a timely request as provided by LAW; and

(D) Provides the name and address of the REGULATORY AUTHORITY representative to whom a request for an appeal hearing may be made.

10-101.58 Removal of Exclusions and Restrictions

The REGULATORY AUTHORITY shall release a FOOD EMPLOYEE or CONDITIONAL EMPLOYEE from restriction or exclusion according to LAW and the conditions specified under §2-201.13.
(Ord. No. 71324, § 4, 2-23-2021.)

11.42.170 Penalties.

Any person, including the PERSON IN CHARGE who is found in violation of any provision of this ordinance, shall be punished by a fine of not less than $100.00 nor more than $500.00 per violation. The City Counselor, on behalf of the City of St. Louis, may take any other appropriate action in law or equity to enjoin or abate any violations of this ordinance. Each day a violation continues shall constitute a separate offense.
(Ord. No. 71324, § 5, 2-23-2021.)

PART II. MISCELLANEOUS PROVISIONS

Editor's note:

> Part II was repealed by Ord. No. 71324, § 1, adopted January 8, 2021. For more information, see the editor's note at Part I of this chapter. Subsequently, a new Part II was added at the discretion of the editor to facilitate inclusion of new material.

11.42.180 Healthy drink options.

A. *Definitions.* For purposes of this section, the following terms and phrases shall be defined as follows:

1. "Food establishment" has the same meaning as in Chapter 11.42.040 of the Revised Code of the City of St. Louis.

2. "Children's meal" means a combination of food items and a beverage that is prepared by and offered for purchase at a food establishment as a unit at a single price and is primarily intended for consumption by children.

B. *Beverage Limitation and Educational Material.*

1. *Beverage Limitation.* Unless requested by the customer as provided in this Section 11.42.180.B.1, no food service operation shall offer a children's meal that includes a beverage unless the beverage is:

a. Water, with no added natural or artificial sweeteners; or

b. Nonfat or one (1) percent milk or a non-dairy milk alternative with no added caloric sweeteners, low-calorie sweeteners, or flavorings containing no more than one hundred thirty (130) calories per container or serving as offered for sale; or

c. One hundred (100) percent fruit juice, containing no more than six (6) ounces per container or serving offered for sale.

Upon a customer's request, a food service operation may sell, and a customer may purchase, a substitute or alternative beverage instead of the beverages offered pursuant to this Subsection B.1.

2. *Educational Material.* The Commissioner or a designee shall make available educational material regarding the nutritional and health reasons to limit a child's consumption of sugared beverages.

C. *Violations.*

1. Any food service operation found to be in violation of Section 11.42.180.B.1 of this section offering a children's meal that includes a beverage shall be given a warning for its first violation, and shall be assessed a fine of one hundred dollars ($100.00) for a second violation, and five hundred dollars ($500.00) for a third violation and any subsequent violations.

2. The offering, by a food service operation on its written or posted menu, of a children's meal with the beverage limitation set forth in Section 11.42.180.B is prima facie evidence of compliance with this chapter. (Ord. No. 71490, §§ 1—3, 3-30-2022.)

PART III. LICENSES—GROSS RECEIPTS TAX

11.42.240 Classes.

Restaurants and itinerant restaurants, as defined in this chapter, are hereby divided into four classes for the purpose of levying and collecting license fees on such restaurants and itinerant restaurants, as follows:

A. Restaurants and itinerant restaurants of the first class are those with a seating capacity for two hundred one or more patrons or guests;

B. Restaurants and itinerant restaurants of the second class are those with a seating capacity for one hundred twenty-five or more and less than two hundred one patrons or guests;

C. Restaurants and itinerant restaurants of the third class are those with a capacity for seating more than fifty and less than one hundred twenty-five patrons or guests;

D. Restaurants and itinerant restaurants of the fourth class are those with a capacity for seating fifty or less patrons or guests.

In computing the seating capacity for guests or patrons for this purpose restaurants not operated in connection with any other business such as a hotel, club, boarding or lodging house, bowling alley, or any other business whatsoever, and which restaurant is also licensed to sell intoxicating liquor by the drink at retail, each two seats shall be counted as one seat.

In computing the seating capacity for guests or patrons of restaurants where service is extended to or may also be had by patrons or guests seated in automobiles in parking lots or areas provided adjacent to, abutting, situated near to or surrounding said restaurants for the purpose of such service and commonly known as "drive-ins," each two hundred square feet of space or fraction thereof on said parking lots shall constitute a single parking space available for each automobile and shall be counted as two seats per such space in addition to the seats provided within the service restaurant thereon. (1994 C., § 11.42.240; Ord. No. 50548, § 1(part), 1961; Ord. No. 48882, § 1(part), 1958; Ord. No. 45224, § 1(part), 1950: 1948 C., Ch. 26, § 71(part).)

11.42.245 License fees.

On all restaurants and itinerant restaurants of the first class there shall be levied and collected as a license fee the sum of one hundred twenty-five dollars, which license shall authorize the party therein named to carry on the business of a restaurant or itinerant restaurant of the first class for a term of six months. On all restaurants and itinerant restaurants of the second class there shall be levied and collected as a license fee the sum of seventy-five dollars, which license shall authorize the party therein named to carry on the business of a restaurant or itinerant restaurant of the second class for a term of six months. On all restaurants and itinerant restaurants of the third class there shall be levied and collected as a license fee the sum of

twenty-five dollars, which license shall authorize the party therein named to carry on the business of a restaurant or itinerant restaurant of the third class for a term of six months, and on all restaurants and itinerant restaurants of the fourth class there shall be levied and collected as a license fee the sum of twelve dollars fifty cents, which license shall authorize the party therein named to carry on the business of a restaurant or itinerant restaurant of the fourth class for a term of six months; said license in each case to run from the first day of May or November of such year. (1948 C., Ch. 26, § 71(part); 1960 C., §§ 472.020, 472.030; 1994 C., § 11.42.245; Ord. No. 50548, § 1(part), 1961; Ord. No. 48882, § 1(part), 1958; Ord. No. 45224, § 1(part), 1950.)

11.42.250 Penalty for violation.

Any person or persons, firm or corporation, who shall carry on the business of a restaurant or itinerant restaurant of any of said classes without first obtaining a license therefor from the License Collector, or who, under a license for a restaurant of one class, shall carry on the business of a restaurant of one class, shall carry on the business of a restaurant or itinerant restaurant of a higher class, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than one hundred dollars. (1948 C., Ch. 26, § 71(part); 1960 C., § 472.010; 1994 C., § 11.42.250; Ord. No. 50548, § 1(part), 1961; Ord. No. 48882, § 1(part), 1958; Ord. No. 45224, § 1(part), 1950.)

11.42.255 Gross receipts tax—Levied.

In addition to the license fees for restaurants or itinerant restaurants levied, as provided in Section 11.42.245, there is hereby levied an additional tax of one percent of the daily gross receipts due from or paid by patrons of all restaurants and itinerant restaurants doing business within the City of St. Louis, except that said one percent tax shall not apply to gross receipts from the sale of any alcoholic beverage subject to regulation by Chapters 14.04—14.36. No restaurants or itinerant restaurant license shall be issued by the License Collector until all taxes levied pursuant to this chapter have been fully paid. The procedures, definitions, duties, obligations and penalties imposed by Chapter 8.06 shall be applicable to restaurants or itinerant restaurants insofar as they are not inconsistent with any provision of this chapter. (1960 C., § 472.030(a); 1994 C., § 11.42.255; Ord. No. 56263, § 3(part), 1972; Ord. No. 54944, § 6(part), 1963.)

City Counselor Ops.: 8283, 9865, 10063, 10231

11.42.260 Gross receipts tax—Report.

It is hereby made the duty of every person, firm or corporation engaged in the business of operating or carrying on the business of a restaurant or itinerant restaurant to file quarterly reports with the Comptroller on or before July 31, October 31, January 31 and April 30 consisting of a sworn statement of the daily gross receipts received from the operation of such business for the three calendar months next preceding the month in which the quarterly report is required to be filed. The person, firm or corporation filing such statement of daily receipts is hereby required, at the time such statement is required to be filed, to pay to the License Collector an amount equal to one percent of the daily gross receipts as shown on the statement so filed. This tax shall be in addition to the license fee as prescribed in Section 11.42.245. No restaurant or itinerant restaurant license shall be issued by the License Collector until all taxes, as herein prescribed in this section, shall have been paid to the License Collector. The definition of the terms "restaurant" and "itinerant restaurant" as contained in this chapter* are adopted as part of this section. (1960 C., § 472.030(b); 1994 C., § 11.42.260; Ord. No. 56263, § 3(part), 1972; Ord. No. 55793, § 1(part), 1971; Ord. No. 54944, § 6(part), 1963.)

11.42.265 Gross receipts tax—Exemption.

The first two thousand five hundred dollars in gross receipts received in a three-month period shall be deducted in the computing of the one percent tax due during such period. Any person, firm or corporation engaged in business as prescribed in Sections 11.42.255—11.42.265 who has not been in business for a period of six full months prior to the reporting date, shall be permitted to prorate an exemption based upon the number of months that such person, firm or corporation had been actually in business. (1960 C., § 472.030(c); 1994 C., § 11.42.265; Ord. No. 56263, § 3(part), 1972; Ord. No. 55793, § 1(part), 1971; Ord. No. 54944, § 6(part), 1963.)

City Counselor Ops.: 8283, 9865, 10063, 10231

11.42.267 Gross receipts tax—Not applicable to religious, educational or charitable organizations.

The gross receipts tax for restaurants and itinerant restaurants shall not apply to the gross receipts from any sale or to any religious, educational or charitable organization or undertaking otherwise included as taxable where a substantial part of the net proceeds de-

rived are solely used for religious, educational or charitable purposes. (1994 C., § 11.42.267; Ord. No. 64726, § 1, 1999.)

11.42.270 Additional gross receipts license tax—Imposed.

There shall be imposed on all restaurants and itinerant restaurants doing business within the City and subject to a tax of one percent of daily gross receipts due from or paid by patrons under Sections 11.42.255, 11.42.260 and 11.42.265, an additional license tax of one half of one percent on the daily gross receipts due from or paid by patrons of such restaurants and itinerant restaurants, in addition to any other license fee or tax currently imposed on such restaurants and itinerant restaurants. (1994 C., § 11.42.270; Ord. No. 60448, § 2, 1987.)

Editor's Note:

The language in Section 11.42.270 was submitted to the qualified voters in the form of a question at a special election held on November 3, 1987. The question received in its favor the votes of a majority of the voters voting thereon, the tax shall be effective on the first day of the second month following the month in which such election is held.

Section Three of Ordinance 56263 is codified in Sections 11.42.255, 11.42.260 and 11.42.265.

11.42.272 Additional gross receipts license tax—Applicability and administration—Proceeds disposition.

A. The additional license tax authorized hereby shall not apply to gross receipts from the sale of any alcoholic beverage subject to regulation by ordinances presently codified as Chapters 14.04 through 14.36 of the Revised Code, St. Louis, 1980, Anno. No restaurant or itinerant restaurant license shall be issued by the License Collector until such tax, in addition to any other tax, license, or fee required to be paid prior to issuance of such license, has been fully paid.

B. Such tax shall be administered, computed and payable at the same time as, and in the same manner as, the tax on daily gross receipts imposed by Sections 11.42.255, 11.42.260 and 11.42.265.

C. The proceeds of the tax authorized hereby shall not be commingled for any purpose whatsoever with the proceeds of the tax imposed pursuant to Sections 11.42.255, 11.42.260 and 11.42.265. (1994 C., § 11.42.272; Ord. No. 60448, § 4, 1987.)

11.42.274 Additional gross receipts license tax—Enforcement.

The procedures, definitions, duties, obligations and penalties imposed or prescribed by ordinances presently codified as Chapter 8.06 of the Revised Code, City of St. Louis, 1980, Anno., shall be applicable to restaurants and itinerant restaurants in the enforcement of Sections 11.42.270 and 11.42.272, to the extent consistent with the provisions of Sections 11.42.270 and 11.42.272. (1994 C., § 11.42.274; Ord. No. 60448, § 5, 1987.)

11.42.276 Reserved.

Editor's Note:

Ord. No. 68597, § 1, adopted March 16, 2010, repealed § 11.42.276 which pertained to additional gross receipts license tax—fee credits and derived from Ord. No. 60531, § 1, 1987.

11.42.278 Additional gross receipts license tax—Dance hall license petition exemption.

No restaurant or itinerant restaurant doing business within the City and subject to a gross receipts license tax pursuant to Sections 11.42.270, 11.42.272 and 11.42.274 shall be required to file a petition pursuant to Section 8.32.040; other than in connection with its initial dance hall license application. (1994 C., § 11.42.278; Ord. No. 60531, § 2, 1987.)

11.42.280 Additional gross receipts license tax—Administration of Sections 11.42.276 and 11.42.278.

The provisions of Sections 11.42.276 and 11.42.278 shall be administered by the License Collector. (1994 C., § 11.42.280; Ord. No. 60531, § 3, 1987.)

11.42.300—11.42.920 Reserved.

PART IV. EMERGENCY FIRST AID PROCEDURES

Editor's Note:

At the city's request the material in this part, formerly located in Sections 11.42.550 through 11.42.575, has been renumbered and relocated.

11.42.940 Definition.

For the purpose of this part, the term "food-service establishment" shall mean any fixed or mobile establishment serving food to the public for consumption on the premises, except any establishment operated on a

temporary basis by a charitable or by a nonprofit corporation. (1994 C., § 11.42.940; Ord. No. 57503, § 1, 1978.)

11.42.942 Methods for removal of food lodged in throat.

The Department of Health and Hospitals shall determine methods which may be used safely and effectively in an emergency by laymen to remove food lodged in a person's throat and shall by regulation publish approved methods. Said methods shall be limited to first aid procedures and shall include techniques to be employed without the use of instruments or devices. (1994 C., § 11.42.942; Ord. No. 57503, § 2, 1978.)

11.42.944 Distribution of placards to establishments.

The Department of Health and Hospitals shall design and distribute to food service establishments without charge placards containing instructions for applying methods approved pursuant to Section 11.42.942. Said placards shall be of a size and design suitable for posting in food service establishments and the instructions shall to the extent practicable be expressed in words and illustrations which are not offensive to restaurant patrons. (1994 C., § 11.42.944; Ord. No. 57503, § 3, 1978.)

11.42.946 Guidelines for training programs.

The Department of Health and Hospitals shall develop and publish guidelines for training programs that may be used on a voluntary basis by food service establishments to train employees in the first aid procedure approved pursuant to Section 11.42.942. (1994 C., § 11.42.946; Ord. No. 57503, § 4, 1978.)

11.42.948 Instructions to be posted—Penalty for violation.

A. Each food service establishment within the City shall have posted in a conspicuous location that is visible to patrons and employees on the premises, but which location need not be in the actual dining areas, instructions concerning at least one (1) method of first aid assistance to choking persons. Said instructions shall cover a method which has been determined safe and effective by the Department of Health and Hospitals for employment by layman without the use of instruments or devices.

B. Any person, firm, partnership, or corporation who violates Subsection A hereof shall be fined not less than $500.00 for each offense. (1994 C., § 11.42.948; Ord. No. 57503, §§ 5, 7, 1978.)

11.42.950 Liability for damages.

Except as provided by law, no person shall be obligated to remove, assist in removing, or attempt to remove, food from another person's throat, nor shall any person who in good faith removes or attempts to remove such food in an emergency occurring at a food service establishment be liable for any civil damages as a result of any acts or omissions by such person in rendering such emergency assistance. (1994 C., § 11.42.950; Ord. No. 57503, § 6, 1978.)

Chapter 11.44

MARKETS

Charter:

Art. I § 1(15) Public buildings and other property

RSMo:

RSMo Ch. 196 (2016) Food, drugs and tobacco

McQuillin:

24.357 et seq. Markets and marketing

Sections:

Part I. City Markets

11.44.010 Designation by Board of Public Service.

11.44.020 South Broadway Market—Established.

11.44.030 South Broadway Market—Permit and license required.

11.44.040 Designations.

11.44.050 Use by farmers only.

11.44.060 Operation of stand without permit or license.

11.44.100 Management.

11.44.105 Management of Soulard Market.

11.44.110 Rules and regulations generally.

11.44.120 Financial matters.

11.44.130 Marketmasters—Duties.

11.44.140 Marketmasters—Powers.

11.44.150 Marketmasters—Police powers.

11.44.160 Scales and other implements for weighing.

11.44.170 Cleaning market buildings and market places.

11.44.180 Produce quality.
11.44.190 Sales reports.
11.44.200 Location of wagon, auto and market stands.
11.44.210 Removal of vehicles after sale of produce.
11.44.220 Dogs or unruly or dangerous animals.
11.44.230 Exhibition of articles means offer for sale.
11.44.240 Depositing refuse, paper or offal in market place.
11.44.250 Transfer of occupation.
11.44.260 Forfeiture of tenancy—Failure to use stall.
11.44.270 Forfeiture of tenancy—Violations.
11.44.290 Union Market employees.
11.44.300 Employees of Soulard, Biddle and South Markets.
11.44.310 Hours.
11.44.320 Renting or leasing—Stands and stalls.
11.44.330 Renting or leasing—Other space.
11.44.340 Union Market garage—Employees.
11.44.350 Union Market garage—Rates.

Part II. Open Air Farmers and Produce Market

11.44.360 Definitions.
11.44.370 Permit—Required.
11.44.380 Permit—Application.
11.44.390 Permit—Investigation—Issuance.
11.44.400 Grading—Pavement.
11.44.410 Sanitary facilities—Hose connections.
11.44.420 Securing stands, counters and temporary shelters.
11.44.430 Refuse containers.
11.44.440 Fires lanes.
11.44.450 Containers.
11.44.460 Off-street parking.
11.44.470 Inspections.
11.44.480 Hearings—Revocation of permit.
11.44.490 Service of notices.
11.44.500 Zones—Hours.
11.44.510 Products prohibited for sale.
11.44.520 Enforcement.

PART I. CITY MARKETS

11.44.010 Designation by Board of Public Service.

The Board of Public Service, on recommendation of the Director of Streets, shall be and is hereby authorized to designate highways in the City and sections of their surfaces; to prescribe that such sections may be occupied during the time from May to November, inclusive, and under permit hereinafter provided for, by any farmer for the purpose of selling from the street, or from the sidewalk adjacent thereto, or from both, produce raised by him; and also for the purpose of parking his vehicle which shall be used by him only as a place in which to store produce to be sold as hereinbefore prescribed, and not as a stand from which to sell the same; to regulate such occupancy; to grant to any farmer, upon payment by him to the City of ten dollars to maintain such sections, a permit to occupy, during the time aforesaid in one year and for such purposes, a portion of any such section, or a portion of each of any number of such sections; and to revoke any such permit at any time for violation by the permittee of any provision of this chapter, or of any regulation of the Board. (1948 C., Ch. 38, § 1(part); 1960 C., § 566.010; 1994 C., § 11.44.010)

City Counselor Ops.: 8100

Cases:

City cannot erect building to be used as a market place in the center of a dedicated street. *Peters v. City of St. Louis,* 226 Mo. 62, 125 S.W. 1134 (1910).

11.44.020 South Broadway Market—Established.

There is established a street market on the east side of south Broadway, between Convent Street and Rutger Street, during the time from May to November, inclusive, and the following part of such street is designated and set aside for the purpose of a street market: The area between the east curb and a parallel line fifteen feet west thereof, extending northwardly to forty feet south of the south line of Convent Street, and extending southwardly to forty feet north of the north line of Rutger Street.

The Director of Streets shall cause such street market to be divided into stands, each stand extending ten feet along the east curb line of South Broadway and numbered consecutively. Such stands may be occupied by any farmer for the purpose of selling, from the street

or from the sidewalk adjacent thereto, or from both, provisions raised by him; also for the purpose of parking his vehicle, which shall be used by him only as a place in which to store produce to be sold as heretofore prescribed, and not as a stand from which to sell the same. It shall be the duty of the Director of Streets, or his duly authorized representative, to see that such stands are occupied only by farmers and in conformity with all the requirements of this chapter. (1948 C., Ch. 38, § 2; 1960 C., § 566.020; 1994 C., § 11.44.020.)

11.44.030 South Broadway Market—Permit and license required.

Any farmer desiring to use stands under the provisions of Section 11.44.020 for the purpose aforesaid shall file with the Director of Streets an application therefor, together with the written consent of the owner or occupant of the adjacent premises. If the Director is satisfied that the applicant is a person of good moral character whose permit to occupy a street market stand has not heretofore been revoked, he shall issue a permit to occupy such stand during the period aforesaid (except Sundays), and for the purposes aforesaid, upon payment to the License Collector of a fee of fifteen dollars. Upon presentation of such permit, the License Collector shall issue to the applicant the license applied for. Any such permit shall be revoked by the Director of Streets after a hearing, if the holder thereof shall violate any of the provisions of this chapter, or shall have in his employ, at any such stand, a person not of good moral character, or shall conduct his business thereat in a disorderly and unsanitary manner, or shall cheat or defraud a patron of his stand. A farmer desiring to occupy more than one of such stands shall secure the permit and pay the license fee herein required for each stand he occupies. Any license issued under this section shall expire on the last day of November of the year that it is issued, and shall be revoked by the License Collector upon the revocation by the Director of Streets of the permit pursuant to which it was issued. (1948 C., Ch. 38, § 3; 1960 C., § 569.020; 1994 C., § 11.44.030)

11.44.040 Designations.

The following markets owned and controlled by the City are designated as markets:

A. *Union Market.* City block one hundred twenty-one, fronting one hundred ninety-five feet six inches on the west side of Broadway, by a depth westwardly of two hundred seventy feet, bounded north by Delmar Boulevard, east by Broadway, south by Lucas Avenue and west by Sixth Street, with the buildings thereon, is hereby declared to be a public market, to be known and called the Union Market.

B. *Soulard Market.* City block number three hundred seventy-four, north comprising an area of three hundred by one hundred thirty feet, bounded on the north by Carroll Street, on the south by Julia Street, on the east by Seventh Street, and on the west by Eighth Street, and City block number three hundred eighty-one, north, comprising an area of three hundred by one hundred thirty feet, bounded on the north by Carroll Street, on the south by Julia Street, on the east by Eighth Street, and on the west by Ninth Street, with the buildings thereon, shall be known as Soulard Market.

C. *Biddle Market.* City block five hundred sixty-four, lying between Thirteenth Street on the west and High Street on the east and extending northwardly from Biddle Street to O'Fallon Street, together with a strip of land eighty-four feet wide in City block five hundred seventy-five, lying between Thirteenth Street on the west and High Street on the east and extending northwardly from O'Fallon Street to a line eighty-four feet three inches north of and parallel with the north line of O'Fallon Street, with the buildings and appurtenances thereon, is hereby declared to be a public market, to be known and called Biddle Market.

D. *South Market.* The northeast quarter of the block bounded on the east by Broadway, on the west by Pennsylvania Avenue, on the north by Schirmer Street, and on the south by Courtois Street, the same being City block thirty-one hundred sixteen, with the buildings thereon shall be known as South Market. (1948 C., Ch. 38, § 9; 1960 C., § 566.030; 1994 C., § 11.44.040.)

11.44.050 Use by farmers only.

Such section shall be occupied only by farmers, for the purposes prescribed herein, and, subject to regulation of the Board, under the supervision and to the satisfaction of the Director of Streets or of his duly authorized representative. (1948 C., Ch. 38, § 1(part); 1960 C., § 566.040; 1994 C., § 11.44.050.)

City Counselor Ops.: 8100, 10031

11.44.060 Operation of stand without permit or license.

Any person who shall occupy any stand in any street market for the purpose of selling any commodity without first having gained the permit and the license herein provided for, or who shall so occupy such stand

after the revocation of such license or such permit, or who shall in any other manner violate the terms of this chapter shall be guilty of a misdemeanor.

It shall be and is hereby declared to be unlawful for any person to occupy any portion of any such section for such purposes without having been granted such permit, or, having been granted the same, after such revocation thereof, and any person who shall do either shall be guilty of a misdemeanor. (1948 C., Ch. 38, §§ 1(part), 4; 1960 C., § 569.030; 1994 C., § 11.44.060.)

City Counselor Ops.: 8100

11.44.100 Management.

The Director of Public Utilities shall have supervision, control and management of the markets owned by the City, except the financial control elsewhere conferred upon the Comptroller, and shall provide for changes and improvements. He shall enforce the ordinances relating to such markets and shall see to it that no enclosures, stands, fixtures or improvements are erected or permitted in any market or market place that are shabby, unsightly or inconsistent with the character of such markets. (1948 C., Ch. 38, § 5; 1960 C., § 565.010; 1994 C., § 11.44.100)

11.44.105 Management of Soulard Market.

On and after the effective date of the ordinance codified in this section, the Director of Parks, Recreation and Forestry shall have all the powers, duties and functions with respect to Soulard Market and its personnel which were assigned to the Director of Public Utilities by Ordinance 34284, approved September 30, 1925 and Section 11.44.100 of this Code. (1994 C., § 11.44.105; Ord. No. 67986, § 2, 6-16-2008.)

11.44.110 Rules and regulations generally.

In addition to the rules and regulations elsewhere prescribed for markets, authority is hereby given to the Director of Public Utilities and Comptroller to make all needful rules and regulations regarding the designation, location and arrangements of market stands, and for the arrangement, stationing and removal of wagons, carts and other vehicles used or brought within the limits of the respective markets or market places. It shall be the duty of the several marketmasters to carry out and enforce such rules and regulations. (1948 C., Ch. 38, § 6; 1960 C., § 565.020; 1994 C., § 11.44.110.)

11.44.120 Financial matters.

All proceedings for the collection and return of market rents, renting of space therein, and control of all financial matters connected therewith shall be under the supervision of the Comptroller, who shall install a system of accounts for the collection and return of market rents and rental of space. (1948 C., Ch. 38, § 7; 1960 C., § 565.030; 1994 C., § 11.44.120)

City Counselor Ops.: 8100

11.44.130 Marketmasters—Duties.

It shall be the duty of each marketmaster in the market for which he is appointed:

A. To exercise supervision over the markethouse and market place, and to enforce the regulations established for the government thereof;

B. To assign places to wagons or persons attending the market and enforce order among them;

C. To exercise a general care and custody of the markethouse and all appurtenances thereof;

D. To examine the quality of all articles offered for sale in the market, and to seize all blown, unsound, diseased, impure or unwholesome articles exposed for sale;

E. To examine weights and measures of all articles exposed for sale, and to report to the Commissioner of Weights and Measures those that are less weight or measure than represented by the seller according to the provisions of law;

F. To enforce order in the market place and decide all disputes that may arise between buyer and seller touching the weight or measure of any article;

G. To attend at the market every day during market hours;

H. To receive from the Comptroller printed tickets for rent of stands and stalls and wagon stands for short periods, and sign and deliver same to renters of stalls. (1948 C., Ch. 38, § 8; 1960 C., § 568.010; 1994 C., § 11.44.130.)

11.44.140 Marketmasters—Powers.

To secure an efficient performance of his duties, each marketmaster is invested with full power and authority to summarily enforce all ordinances, rules and regulations in all matters connected with the market for which he is appointed, and all persons are required to obey his rules, regulations and directions in all such matters. (1948 C., Ch. 38, § 16; 1960 C., § 568.030; 1994 C., § 11.44.140.)

11.44.150 Marketmasters—Police powers.

It is the duty of each marketmaster to order or remove from the markethouse or market place, in sum-

mary manner, any person who is guilty of any violent, turbulent or disorderly conduct, or who shall in any way interfere with him or disturb the marketers or buyers, or who shall violate or refuse to obey any ordinances, rules or regulations for the government or management of the markets and market places, or who shall expose as if for sale, sell, or attempt to sell anything in the market or market places, that is prohibited by ordinance, or who shall sell or offer for sale, or expose as if intended for sale, anything in the market or market place without first having obtained a license or other proper authority so to do according to the spirit and intent of this chapter. For the purpose of enabling the marketmasters of the several markets more effectually to carry out the provisions of this chapter, it shall be the duty of each respectively to apply for and obtain an appointment from the police commissioners as special policemen. (1948 C., Ch. 38, § 18; 1960 C., § 568.050; 1994 C., § 11.44.150)

11.44.160 Scales and other implements for weighing.

Each marketmaster shall keep as many scales and other implements for weighing, duly stamped and certified by the Commissioner of Weights and Measures, as may be necessary to conveniently do weighing in his market, and shall, whenever requested, weigh all articles belonging to marketers and others intended for sale. (1948 C., Ch. 38, § 15; 1960 C., § 568.020; 1994 C., § 11.44.160)

11.44.170 Cleaning market buildings and market places.

The marketmasters shall cause the market buildings and market places to be thoroughly cleaned and kept clean and sanitary and all refuse, filth and debris to be removed from the premises. (1948 C., Ch. 38, § 17; 1960 C., § 568.040; 1994 C., § 11.44.170)

11.44.180 Produce quality.

All produce sold as hereinabove described shall be fresh and wholesome, and shall be uniform in size and quality from the top to the bottom of any box, basket or crate containing the same. Prices of such produce shall be no higher than those of similar produce sold by merchants in the immediate vicinity of such sections. (1948 C., Ch. 38, § 1(part); 1960 C., §§ 571.060, 571.070; 1994 C., § 11.44.180)

City Counselor Ops.: 8100

11.44.190 Sales reports.

At the end of each week each such permittee, before departing from the portion of any such section occupied by him, shall report to the representative of the Director of Streets the value of produce sold and the number of customers served by him during that week. (1948 C., Ch. 38, § 1(part); 1960 C., § 571.080; 1994 C., § 11.44.190)

City Counselor Ops.: 8100

11.44.200 Location of wagon, auto and market stands.

The Director of Public Utilities and the Comptroller are hereby authorized to locate wagon, auto or market stands in such manner that those in the same business shall occupy contiguous spaces. (1948 C., Ch. 38, § 19; 1960 C., § 571.010; 1994 C., § 11.44.200)

11.44.210 Removal of vehicles after sale of produce.

Whenever any person shall have sold or disposed of the commodities brought by him to market for sale, he may be required to remove his vehicle from the market place forthwith. (1948 C., Ch. 38, § 20; 1960 C., § 571.020; 1994 C., § 11.44.210)

11.44.220 Dogs or unruly or dangerous animals.

No person shall bring, or suffer to come with him, into or upon any market place during market hours any dog or unruly or dangerous animal. (1948 C., Ch. 38, § 21; 1960 C., § 571.030; 1994 C., § 11.44.220)

11.44.230 Exhibition of articles means offer for sale.

Whenever any article shall be exhibited in a market, as if the same were intended for sale, whether sold or not, or directly offered for sale or not, such exhibition shall be held to be an exposure of the same for sale, and an offer to sell within the meaning of this chapter. (1948 C., Ch. 38, § 22; 1960 C., § 571.040; 1994 C., § 11.44.230)

11.44.240 Depositing refuse, paper or offal in market place.

No person shall throw or deposit any refuse, paper or offal in any markethouse or market place, or street, sidewalk or driveway adjoining such market place. (1948 C., Ch. 38, § 28; 1960 C., § 571.050; 1994 C., § 11.44.240)

11.44.250 Transfer of occupation.

No person shall make or accept any transfer of any stand or stall or wagon stand, or occupy the same by

virtue of such transfer, without the written consent of the Comptroller, and any person who shall violate any of the provisions of this section, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 38, § 4(part); 1960 C., § 569.040; 1994 C., § 11.44.250)

11.44.260 Forfeiture of tenancy—Failure to use stall.

If the tenant of any stand or stall in any City market fails for six consecutive days to expose for sale, at his stand or stall, articles usually sold thereat, unless such failure be proven to the satisfaction of the Comptroller to have been caused by sickness, or other unavoidable circumstances, his tenancy shall be forfeited. (1948 C., Ch. 38, § 25; 1960 C., § 570.030; 1994 C., § 11.44.260)

11.44.270 Forfeiture of tenancy—Violations.

If any lessee or renter of any stall or stand or wagon stand, in any City market, be twice convicted of violating any ordinance or rules and regulations in relation to markets, his lease shall be adjudged to be forfeited. (1948 C., Ch. 38, § 26; 1960 C., § 570.040; 1994 C., § 11.44.270)

11.44.290 Union Market employees.

The Director of Public Utilities is hereby authorized to appoint for Union Market, contained in the Union Market building, the following employees: One marketmaster, who shall have supervision of Union Market, and who shall exercise superintending control over the Soulard, Biddle and South Markets. He shall enforce all rules and regulations adopted by the Director of Public Utilities and Comptroller for the operation and conduct of such markets. The marketmaster shall give bond in the sum of two thousand dollars. The Director of Public Utilities shall appoint four market helpers, who shall be under the direction of the marketmaster of Union Market, and who shall perform such duties as may be assigned to them by the marketmaster and one assistant marketmaster. The Director of Public Utilities shall appoint one matron, who shall be under the direction of the marketmaster at Union Market. The Director of Public Utilities shall also appoint one watchman who shall be under the direction of the marketmaster. With the approval of the Board of Estimate and Apportionment, additional employees may be employed for the proper conduct of the Union Market. (1948 C., Ch. 38, § 10; 1960 C., § 567.030; 1994 C., § 11.44.290.)

11.44.300 Employees of Soulard, Biddle and South Markets.

The Director of Public Utilities shall appoint the following employees at Soulard, Biddle and South Markets:

Soulard Market: One marketmaster; three market helpers;

Biddle Market: One marketmaster; one market helper;

South Market: One marketmaster. (1948 C., Ch. 38, § 11; 1960 C., § 567.010; 1994 C., § 11.44.300.)

11.44.310 Hours.

Union Market shall be open for the sale of provisions and all other articles allowed to be sold therein, from seven a.m. to seven p.m. on weekdays and from seven a.m. to nine p.m. on Saturdays. Hours for all other markets owned and controlled by the City shall be regulated by the marketmasters of the respective markets with the approval of the Director of Public Utilities and the Comptroller. (1948 C., Ch. 38, § 14; 1960 C., § 567.020; 1994 C., § 11.44.310.)

11.44.320 Renting or leasing—Stands and stalls.

It shall be the duty of the Comptroller to rent or lease all of the stands of the Union Market and stands or stalls and wagon stands in all markets owned by the City for such period of time not exceeding five years and for such rental and upon such terms and conditions as shall be approved, fixed and prescribed by the Board of Estimate and Apportionment. (1960 C., § 570.010; 1994 C., § 11.44.320; Ord. No. 47040, § 1, 1954.)

City Counselor Ops.: 8100

11.44.330 Renting or leasing—Other space.

It shall be the duty of the Comptroller to rent or lease any space in the Union Market, not used or required for use as stands or stalls, for any mercantile business not forbidden by law, or for passenger or express terminals and waiting rooms for buses or other conveyances, with such offices and conveniences as are usually incident thereto, for such period not to exceed five years, and at such rental and upon such terms and conditions as shall be approved, fixed and prescribed by the Board of Estimate and Apportionment; provided, further, that no part of the premises so leased shall be used for any business competing or interfering

with the regular tenants of the market. (1960 C., § 570.020; 1994 C., § 11.44.330; Ord. No. 47040, § 2, 1954.)

City Counselor Ops.: 8100

11.44.340 Union Market garage—Employees.

The Director of Public Utilities is hereby authorized to appoint for the Union Market garage the following employees:

A. One superintendent of the Union Market garage, who shall have supervision, except the financial control elsewhere conferred upon the Comptroller, over the Union Market garage. He shall perform the duties which now are, or hereafter may be, imposed upon him by the Director of Public Utilities, and in addition thereto he shall enforce all rules and regulations adopted for the operation and maintenance of Union Market garage;

B. One head floorman, who shall perform such duties as may be assigned to him by the superintendent;

C. Four floormen who shall perform such duties as may be assigned to him by the superintendent;

D. One elevator operator and one janitor;

E. Additional employees may be employed as may be necessary for the proper conduct of the Union Market garage. (1948 C., Ch. 38, § 31; 1960 C., § 572.010; 1994 C., § 11.44.340.)

11.44.350 Union Market garage—Rates.

The Comptroller is hereby authorized, with the approval of the Board of Estimate and Apportionment, to establish rates of hourly, daily and monthly parking of automobiles and trucks in the Union Market garage. He shall install a system of accounts for the collection of all fees and charges for the storage of automobiles and trucks in such garage and shall appoint the following employees:

A. One collector, who shall perform the duties assigned to him by the Comptroller, and who shall be responsible for the fees and charges collected by him for the storage of automobiles and trucks in such garage. The collector shall give bond in the sum of three thousand dollars;

B. One assistant collector, who shall perform the duties assigned to him by the collector. The assistant collector shall give bond in the sum of two thousand dollars. (1948 C., Ch. 38, § 32; 1960 C., § 572.020; 1994 C., § 11.44.350.)

PART II. OPEN AIR FARMERS AND PRODUCE MARKET

11.44.360 Definitions.

For the purpose of this part certain words and terms are hereby defined as follows:

A. "Open air farmers and produce market" mean any privately-owned or -operated open-air market for the sale of fruit, eggs, and produce at retail or wholesale;

B. "Operator" means any person, firm or corporation who rents, lets or sublets space in an open air farmers and produce market, or who sells in an open air farmers and produce market. (1960 C., § 573.010; 1994 C., § 11.44.360; Ord. No. 48157, § 1, 1957.)

City Counselor Ops.: 8907

11.44.370 Permit—Required.

It shall be unlawful to operate an open air farmers and produce market without first securing a permit to do so from the Board of Public Service. (1960 C., § 573.020; 1994 C., § 11.44.370; Ord. No. 48157, § 2, 1957.)

City Counselor Ops.: 8907

11.44.380 Permit—Application.

Every operator now engaging in or desiring to engage in the business of an open air farmers and produce market shall file an application with the Building Commissioner on a form approved by the Board of Public Service stating:

A. The name and address of the operator;

B. Proposed location to be used;

C. Zoning district in which the proposed site is located;

D. A plan setting forth the size and area of site to be used; location of sanitary facilities therein; rental spaces clearly marked thereon, location of fire lanes, arrangement for the disposition of garbage, offal and liquid waste;

E. All other pertinent information required by the Board of Public Service. (1960 C., § 573.040; 1994 C., § 11.44.380; Ord. No. 48157, § 4, 1957.)

City Counselor Ops.: 8907

11.44.390 Permit—Investigation—Issuance.

Upon receipt of said application and upon the payment of the ten dollar filing fee to the Building Commissioner, the Building Commissioner shall make investigation to ascertain whether or not the provisions

of this part have been met, provided further that under no condition shall said sum or any part thereof be refunded if the Board of Public Service refuses to grant the permit. Upon completion of the investigation, the Building Commissioner shall forward his recommendations as to whether or not the permit shall be granted to the Board of Public Service. If the Board of Public Service finds that all the provisions of this part have been met, it shall issue a permit to the operator. (1960 C., § 573.050; 1994 C., § 11.44.390; Ord. No. 48157, § 5, 1957.)

City Counselor Ops.: 8907

11.44.400 Grading—Pavement.

All parcels of land used for an open air farmers and produce market shall be paved with bituminous, concrete, or equivalent surfacing and shall be graded and maintained to prevent drainage onto adjoining property, alleys, sidewalks or streets. (1960 C., § 573.030; 1994 C., § 11.44.400; Ord. No. 48157, § 3, 1957.)

City Counselor Ops.: 8907

11.44.410 Sanitary facilities—Hose connections.

All open air farmers and produce markets shall be provided with proper sanitary facilities consisting of one toilet and one lavatory with running water. There shall be one lavatory and one toilet for each ten thousand or less square feet of market area. There shall be one or more hose connections connected to an adequate water supply provided for each ten thousand square feet of market area, and so located that all parts of the area may be reached by a hose one hundred feet in length. (1960 C., § 573.060; 1994 C., § 11.44.410; Ord. No. 48157, § 6, 1957.)

City Counselor Ops.: 8907

11.44.420 Securing stands, counters and temporary shelters.

All stands, counters and temporary shelters shall be adequately secured to the around or pavement in accordance with the rules promulgated by the Building Commissioner for the operation of such market. (1960 C., § 573.070; 1994 C., § 11.44.420; Ord. No. 48157, § 7(part), 1957.)

City Counselor Ops.: 8907

11.44.430 Refuse containers.

The operator shall furnish a sufficient number of refuse containers which shall be water-tight, noncorrosive and tightly-covered and adequate to hold all accumulations of garbage, offal and liquid waste from such operation. (1960 C., § 573.080; 1994 C., § 11.44.430; Ord. No. 48157, § 7(part), 1957.)

City Counselor Ops.: 8907

11.44.440 Fires lanes.

Fire lanes, twelve feet in width, shall be clearly marked with white lines on the pavement, and each rental space shall be clearly marked with white lines on the pavement. (1960 C., § 573.090; 1994 C., § 11.44.440; Ord. No. 48157, § 8, 1957.)

City Counselor Ops.: 8907

11.44.450 Containers.

Boxes, crates, barrels, cartons and other containers must be kept clean and stored in neat piles at all times. (1960 C., § 573.100; 1994 C., § 11.44.450; Ord. No. 48157, § 9, 1957.)

City Counselor Ops.: 8907

11.44.460 Off-street parking.

Off-street parking shall be provided for customers in accordance with the requirement for retail stores under Chapter 26.44. (1960 C., § 573.110; 1994 C., § 11.44.460; Ord. No. 48157, § 10, 1957.)

City Counselor Ops.: 8907

11.44.470 Inspections.

The Building Commissioner shall inspect or cause to be inspected all open air farmers and produce markets at least once a year to ascertain whether the market meets the requirements of this part. A fee of five dollars shall be charged the operator for such inspection. (1960 C., § 573.120; 1994 C., § 11.44.470; Ord. No. 52024, § 1, 1963; Ord. No. 48157, § 11, 1957.)

City Counselor Ops.: 8907

11.44.480 Hearings—Revocation of permit.

Whenever the Building Commissioner finds any open air farmers and produce market in violation of any of the requirements of this part, he shall immediately notify the operator thereof to correct or abate same. If the violation is not abated within a reasonable period, the Building Commissioner shall file a report of such violation with the Board of Public Service with his recommendation to revoke said permit. The board shall notify the operator in writing within a reasonable time of the Building Commissioner's recommendation and shall within a reasonable time, not more than thirty days after receiving the Building Commissioner's recommendation, conduct a hearing as to whether the

permit should be revoked. If the board finds that market to be in violation of the provisions of this part, the board shall forthwith revoke the permit. (1960 C., § 573.130; 1994 C., § 11.44.480; Ord. No. 48157, § 12, 1957.)

City Counselor Ops.: 8907

11.44.490 Service of notices.

All notices required to be served upon the operator under the provisions of this part shall be deemed served if a copy thereof shall:

A. Be delivered to him personally; or

B. If not found, by leaving a copy at his usual place of abode, with a member of his family of sixteen or more years of age; or

C. By posting a copy in a conspicuous place in or about the market affected by the notice; or

D. By sending a copy of the notice by registered letter with a return receipt requested, to the home address of operator specified in the application for the market; or

E. If registered letter with copy is returned with receipt showing it has not been delivered to him, by posting a copy thereof in a conspicuous place in or about the market. (1960 C., § 573.140; 1994 C., § 11.44.490; Ord. No. 48157, § 13, 1957.)

City Counselor Ops.: 8907

11.44.500 Zones—Hours.

Operation of any open air farmers and produce market in the "F" local business; "G" commercial and "H" commercial zones prohibited between the hours of nine p.m. and seven a.m. and on Sunday. In the "F" local business district, sales shall be at retail only. (1960 C., § 573.150; 1994 C., § 11.44.500; Ord. No. 48157, § 14, 1957.)

City Counselor Ops.: 8907

11.44.510 Products prohibited for sale.

Open air produce or farmers' markets are hereby prohibited from selling or offering for sale poultry, meat or meat products, fish, and milk or milk products. (1960 C., § 573.160; 1994 C., § 11.44.510; Ord. No. 48157, § 15, 1957.)

City Counselor Ops.: 8907

11.44.520 Enforcement.

It shall be and is hereby declared the duty of the Department of Police to assist in the enforcement of the provisions of this chapter. (1948 C., Ch. 31, § 1(part); 1994 C., § 11.44.520.)

Chapter 11.46

MILK

Charter:

Art. I § 1(27) Inspection of articles of consumption or use.

RSMo:

RSMo 71.720 (2016) Power to regulate milk

RSMo ch. 196 Food, drugs and tobacco

RSMo 196.520— 196.614 (2016) Missouri Dairy Law

RSMo 196.851—196.895 (2016) Manufacture and sale of ice cream and frozen food products

RSMo 196.931—196.959 (2016) Fluid milk and fluid milk products

City Counselor Ops.: 8769

Cases:

Ordinance forbidding dealing in raw milk, which is declared lawful product by statute, is unconstitutional. *State v. Kinsey,* 282 S.W. 437 (1926).

Saint Louis ordinance providing a lower standard for the sale of milk than set by state law was valid. *City of St. Louis v. Scheer,* 235 Mo. 721, 139 S.W. 434 (1911).

Municipal ordinance prescribing standards below that fixed by statute is valid, but when ordinance fixes higher standard, the ordinance to that extent is invalid. *St. Louis v. Union Dairy Co.,* 112 S.W. 525, 213Mo. 148 (1908); *City of St. Louis v. Klausmeier,* 213 Mo. 119, 112 S.W. 516 (1908).

An ordinance fixing the standard of milk which shall be offered for sale and the method by which it shall be tested, not being manifestly unreasonable and oppressive, is a proper exercise of the police power. *City of St. Louis v. Liessing,* 89 S.W. 511, 190 Mo. 464, 1 L.R.A. (N.S.) 918, 109 Am. St. Rep. 774, 4 Ann. Cas. 112 (1905).

McQuillin:

24.414 et seq. Regulation of dairies, milk and dairy products

Sections:

11.46.010 Definitions.

11.46.020 Acidified milk and milk products defined.

11.46.030 Adulterated milk and milk products defined.

11.46.040 And/or defined.

11.46.050 Board of public service defined.

11.46.060 Bulk tank truck operator defined.

11.46.070 Buttermilks defined.

11.46.080 Concentrated milk, concentrated milk products and frozen milk concentrate defined.

11.46.090 Creams defined.

11.46.100 Cultured milk products and cottage cheeses defined.

11.46.110 Dairy farm defined.

11.46.120 Flavored milk or milk products defined.

11.46.130 Fortified milk and milk products defined.

11.46.140 Grade A dry milk products defined.

11.46.150 Half and halves defined.

11.46.160 Health Authority or health officer defined.

11.46.170 Homogenized milk defined.

11.46.180 Laboratories defined.

11.46.190 Lowfat milk defined.

11.46.200 Milk defined.

11.46.210 Milk distributor defined.

11.46.220 Milk hauler defined.

11.46.230 Milk plant and/or receiving station defined.

11.46.240 Milk producer defined.

11.46.250 Milk products defined.

11.46.260 Misbranded milk or milk products defined.

11.46.270 Optional ingredients defined.

11.46.280 Pasteurization defined.

11.46.290 Person defined.

11.46.300 Reconstituted milk and milk products defined.

11.46.310 Sanitization defined.

11.46.320 Skim milk or skimmed milk defined.

11.46.330 Transfer station defined.

11.46.340 Vitamin D milk and milk products defined.

11.46.350 Adulterated or misbranded milk or milk products.

11.46.360 Permits.

11.46.370 Labeling.

11.46.380 Inspection of dairy farms and milk plants.

11.46.390 Examination.

11.46.400 Standards.

11.46.410 Sanitation—For Grade A raw milk for pasteurization.

11.46.420 Sanitation—For Grade A pasteurized milk and milk products.

11.46.430 Animal health.

11.46.440 Milk and milk products which may be sold.

11.46.450 Transferring—Storing—Vehicles.

11.46.460 Milk and milk products from points beyond the limits of routine inspection.

11.46.470 Future dairy farms and milk plants.

11.46.480 Personnel heath.

11.46.490 Procedure when infection is suspected.

11.46.500 Enforcement.

11.46.510 Collection and delivery from farms to milk plants or transfer stations.

11.46.520 Interference with health officer.

11.46.530 Inspection fees.

11.46.540 Penalty for violation.

11.46.010 Definitions.

The following definitions shall apply in the interpretation and the enforcement of this chapter. (1960 C., § 460.010; 1994 C., § 11.46.010; Ord. No. 55834, § 2(1 part), 1971.)

11.46.020 Acidified milk and milk products defined.

"Acidified milk and milk products" are milk and milk products obtained by the addition of food grade acids to pasteurized cream, half and half, milk, lowfat milk, or skim milk, resulting in a product acidity of not less than 0.20 percent expressed as lactic acid. (1960 C., § 460.330; 1994 C., § 11.46.020; Ord. No. 55843, § 2(1N), 1971.)

11.46.030 Adulterated milk and milk products defined.

"Adulterated milk and milk products" mean any milk or milk products shall be deemed to be adulterated if:

A. It bears or contains any poisonous or deleterious substance in a quantity which may render it injurious to health;

B. It bears or contains any added poisonous or deleterious substance for which no safe tolerance has been established by state or federal regulations, or in excess of such tolerance if one has been established;

C. It consists, in whole or in part, of any substance unfit for human consumption;

D. It has been produced, processed, prepared, packed, or held under unsanitary conditions;

E. Its container is composed, in whole, or in part, of any poisonous or deleterious substance which may render the contents injurious to health;

F. Water or any other substance has been added thereto or mixed or packed therewith so as to increase its bulk or weight, or reduce its quality or strength, or make it appear better or of greater value than it is. (1960 C., § 460.430; 1994 C., § 11.46.030; Ord. No. 55834, § 2(1R), 1971.)

11.46.040 And/or defined.

Where the term "and/or" is used, "and" shall apply where appropriate, otherwise "or" shall apply. (1960 C., § 460.590; 1994 C., § 11.46.040. Ord. No. 55834, § 2(1DD), 1971.)

11.46.050 Board of public service defined.

"Board of public service" shall mean the Board of Public Service described in the Charter of the City of St. Louis. (1960 C., § 460.520; 1994 C., § 11.46.050; Ord. No. 55843, § 2(1X), 1971.)

11.46.060 Bulk tank truck operator defined.

"Bulk tank truck operator" is any person who operates a bulk transport tank truck for the purpose of collecting Grade A raw milk for pasteurization from farm milk cooling and holding tanks and who possesses a bulk tank truck operators permit from the health officer. (1960 C., § 460.490; 1994 C., § 11.46.060; Ord. No. 55834, § 2(1V1), 1971.)

11.46.070 Buttermilks defined.

A. "Buttermilk" means a fluid product resulting from the manufacture of butter from milk or cream. It contains not less than eight and one-quarter percent of milk solids not fat.

B. "Cultured buttermilk" is a fluid product resulting from the souring, by lactic acid-producing bacteria or similar culture, of pasteurized skim milk or pasteurized lowfat milk. (1960 C., §§ 460.280, 460.290; 1994 C., § 11.46.070; Ord. No. 55834, § 2(1L), 1971.)

11.46.080 Concentrated milk, concentrated milk products and frozen milk concentrate defined.

A. "Concentrated milk" is a fluid product, unsterilized and unsweetened, resulting from the removal of a considerable portion of the water from milk, which when combined with potable water, results in a product conforming with the standards for milkfat and solids not fat of milk as defined above.

B. "Concentrated milk products" shall be taken to mean and to include homogenized concentrated milk, vitamin D concentrated milk, concentrated skim milk, fortified concentrated lowfat milk, concentrated flavored milk, concentrated flavored milk products, and similar concentrated milk products, made from concentrated milk or concentrated skim milk, and which, when combined with potable water in accordance with instructions printed on the container, conform with the definitions of the corresponding milk products in this section.

C. "Frozen milk concentrate" is a frozen milk product with a composition of milkfat and milk solids not fat in such proportions that when a given volume of concentrate is mixed with a given volume of water the reconstituted product conforms to the milkfat and milk solids not fat requirements of whole milk. In the manufacturing process, water may be used to adjust the primary concentrate to the final desired concentration. The adjusted primary concentrate is pasteurized, packaged, and immediately frozen. This product is stored, transported, and sold in the frozen state. (1960 C., §§ 460.160—460.180; 1994 C., § 11.46.080; Ord. No. 55834, § 2(1E), 1971.)

11.46.090 Creams defined.

A. "Cream" is the sweet, fatty liquid separated from milk, with or without the addition of milk or skim milk, which contains not less than eighteen percent milkfat.

B. "Heavy cream or heavy whipping cream" is cream which contains not less than thirty-six percent milkfat.

C. "Light cream, coffee cream, or table cream" is cream which contains not less than eighteen percent but less than thirty percent milkfat.

D. "Light whipping cream" is cream that contains not less than thirty percent but less than thirty-six percent milkfat.

E. "Sour cream or cultured sour cream" is a fluid or semifluid cream resulting from the souring, by lactic acid-producing bacteria or similar culture, of pasteurized cream, which contains not less than 0.20 percent acidity expressed as lactic acid.

F. "Whipped cream" is whipping cream into which air or gas has been incorporated.

G. "Whipped light cream, coffee cream, or table cream" is light cream, coffee cream, or table cream into which air or gas has been incorporated.

H. "Whipping cream" is cream which contains not less than thirty percent milkfat. (1960 C., §§ 460.050—460.120; 1994 C., § 11.46.090; Ord. No. 55834, § 2(1B), 1971.)

11.46.100 Cultured milk products and cottage cheeses defined.

A. "Cultured milk, cultured milk products or cultured whole milk buttermilk" is a fluid product resulting from the souring by lactic acid-producing bacteria or similar culture, of pasteurized milk or milk products.

B. "Cottage cheese" is the soft uncured cheese obtained by adding lactic acid-producing bacteria, with or without enzymatic action, to pasteurized skim milk, pasteurized lowfat milk, or pasteurized reconstituted skim milk. It shall contain not more than eighty percent moisture. Cottage cheese may be seasoned with salt.

C. "Creamed cottage cheese" is prepared by mixing cottage cheese with a pasteurized creaming mixture consisting of pasteurized cream and milk, dry milk products, concentrated skim milk, skim milk or lowfat milk, to which salt, lactic acid, and flavor producing bacteria, rennet, tactic acid, citric acid, phosphoric acid or stabilizer may be added. The quantity of milkfat added in the creaming mixture shall be not less than four percent by weight of the finished creamed cottage cheese. Dry milk products or concentrated skim milk may be added, provided the amount of added solids does not exceed three percent of the weight of the creaming mixture. Creamed cottage cheese shall contain not more than eighty percent moisture. (1960 C., §§ 460.300—460.320; 1994 C., § 11.46.100; Ord. No. 55834, § 2(1M), 1971.)

11.46.110 Dairy farm defined.

"Dairy farm" is any place or premises where one or more cows or goats are kept, and from which all of the milk or milk product(s) is provided, sold, or offered for sale to a milk plant, transfer station, or receiving station. (1960 C., § 460.530; 1994 C., § 11.46.110; Ord. No. 55834, § 2(1Y), 1971.)

11.46.120 Flavored milk or milk products defined.

A. "Flavored milk or milk products" shall mean milk and milk products as defined in this chapter to which has been added a flavor and/or sweetener.

B. "Eggnog" is a milk product consisting of a mixture of milk or milk product of at least 6.0 percent butterfat, at least 1.0 percent egg yolk solids plus sweetener and flavoring. Emulsifier and not over 0.50 percent stabilizer may be added.

C. "Eggnog flavored lowfat milk" is a milk product consisting of a mixture of not less than one-half percent nor more than two percent butterfat, at least one-half percent egg yolk solids plus sweetener and flavoring. Emulsifier and a maximum of one-half percent of stabilizer may be added.

D. "Eggnog flavored milk" is a milk product consisting of a mixture of at least three and one-quarter percent butterfat, at least one-half percent egg yolk solids plus sweetener and flavoring. Emulsifier and a maximum of one-half percent stabilizer may be added. (1960 C., §§ 460.240—460.270; 1994 C., § 11.46.120; Ord. No. 55834, § 2(1K), 1971.)

11.46.130 Fortified milk and milk products defined.

"Fortified milk and milk products" are milk and milk products other than vitamin D milk and milk products, the vitamin and/or mineral content of which have been increased by a method and in an amount approved by the health officer. (1960 C., § 460.220; 1994 C., § 11.46.130; Ord. No. 55843, § 2(1I), 1971.)

11.46.140 Grade A dry milk products defined.

"Grade A dry milk products" are milk products which have been produced for use in Grade A pasteurized milk products and which have been manufactured under the provisions of Grade A dry milk products—recommended sanitation ordinance and code for dry milk products used in Grade A pasteurized milk products. (1960 C., § 460.410; 1994 C., § 11.46.140; Ord. No. 55843, § 2(1P), 1971.)

11.46.150 Half and halves defined.

A. "Half and half" is a product consisting of a mixture of milk and cream which contains not less than ten and one-half percent milkfat.

B. "Sour half and half or cultured half and half or dairy dressing" is fluid or semifluid half and half derived from the souring, by lactic acid-producing bacteria or similar culture, of pasteurized half and half, which contains not less than 0.20 percent acidity expressed as lactic acid. (1960 C., §§ 460.130, 460.140; 1994 C., § 11.46.150; Ord. No. 55843, § 2(1C), 1971.)

11.46.160 Health Authority or health officer defined.

The "Health Authority" or "health officer" shall mean the Health Commissioner of the City of St. Louis or his authorized representative. The term, "Health Authority" or "health officer," wherever it appears in this chapter, shall mean the appropriate agency having jurisdiction and control over the matters embraced within this chapter. (1960 C., § 460.510; 1994 C., § 11.46.160; Ord. No. 55834, § 2(1X), 1971.)

11.46.170 Homogenized milk defined.

"Homogenized milk" is milk which has been treated to ensure breakup of the fat globules to such an extent that after forty-eight hours of quiescent storage at forty-five degrees Fahrenheit, no visible cream separation occurs on the milk, and the fat percentage of the top one hundred milliliters of milk in a quart, or of proportionate volumes in containers of other sizes, does not differ by more than ten percent from the fat percentage of the remaining milk as determined after thorough mixing. The word "milk" shall be interpreted to include homogenized milk. (1960 C., § 460.230; 1994 C., § 11.46.170; Ord. No. 55834, § 2(1J), 1971.)

11.46.180 Laboratories defined.

A. "Official laboratory" is a biological, chemical, or physical laboratory which is under the direct supervision of the state or local health officer.

B. An "officially designated laboratory" is a commercial laboratory authorized to do official work by the supervising agency, or a milk industry laboratory officially designated by the supervising agency for the examination of producer samples of Grade A raw milk for pasteurization. (1960 C., §§ 460.560, 460.570; 1994 C., § 11.46.180; Ord. No. 55834, § 2(1AA, BB), 1971.)

11.46.190 Lowfat milk defined.

"Lowfat milk" is milk from which sufficient portion of milkfat has been removed to reduce its milkfat content to not less than one-half percent and not more than two percent. (1960 C., § 460.200; 1994 C., § 11.46.190; Ord. No. 55834, § 2(1G), 1971.)

11.46.200 Milk defined.

A. "Milk" is the lacteal secretion, practically free from colostrum, obtained by the complete milking of one or more healthy cows which contains not less than eight and one-quarter percent milk solids not fat and not less than three and one-quarter percent of milkfat. Milkfat or butterfat is the fat of milk.

B. "Breed milk" is milk from a herd of cows where at least ten percent of the herd is registered pure bred and the remainder at least high grade individuals of the same breed. The word "milk" shall be interpreted to include breed milk.

C. "Goat milk" is the lacteal secretion, practically free from colostrum, obtained by the complete milking of healthy goats. The word "milk" shall be interpreted to include goat milk. (1960 C., §§ 460.020—460.040; 1994 C., § 11.46.200; Ord. No. 55834, § 2(1A), 1971.)

11.46.210 Milk distributor defined.

A "milk distributor" is any person who offers for sale or sells to another any milk or milk products. (1960 C., § 460.500; 1994 C., § 11.46.210; Ord. No. 55834, § 2(1W), 1971.)

11.46.220 Milk hauler defined.

A "milk hauler" is any person who transports raw milk and/or raw milk products to or from a milk plant, receiving or transfer station. (1960 C., § 460.480; 1994 C., § 11.46.220; Ord. No. 55834, § 2(1V), 1971.)

11.46.230 Milk plant and/or receiving station defined.

A "milk plant and/or receiving station" is any place, premises, or establishment where milk or milk products are collected, handled, processed, stored, pasteurized, bottled, or prepared for distribution. (1960 C., § 460.540; 1994 C., § 11.46.230; Ord. No. 55834, § 2(1Z), 1971.)

11.46.240 Milk producer defined.

A "milk producer" is any person who operates a dairy farm and provides, sells, or offers milk for sale to a milk plant, receiving station, or transfer station. (1960 C., § 460.470; 1994 C., § 11.46.240; Ord. No. 55834, § 2(1U), 1971.)

11.46.250 Milk products defined.

"Milk products" include cream, light cream, coffee cream, table cream, whipping cream, light whipping cream, heavy cream, heavy whipping cream, whipped cream, whipped light cream, whipped coffee cream, whipped table cream, sour cream, cultured sour cream, dairy dressing, half and half, sour half and half, cultured half and half, reconstituted or recombined milk and milk products, concentrated milk, concentrated milk products, skim milk, skimmed milk, lowfat milk, fortified milk and milk products, vitamin D milk and milk products, homogenized milk, flavored milk or milk products, buttermilk, cultured buttermilk, cul-

tured milk, cultured milk products, cultured whole milk buttermilk, and acidified milk and milk products and any other product made by the addition of any substance to milk, or to any of these milk products, and used for similar purposes, and designated as a milk product by the health officer. This definition is not intended to include such products hermetically sealed in a container and so processed, either before or after sealing, as to prevent microbial spoilage, or evaporated milk, condensed milk, ice cream, and other frozen desserts, butter, dry milk products (except as defined herein) or cheese (except as defined herein) except when they are combined with other substances to produce any pasteurized milk or milk product defined herein. (1960 C., § 460.400; 1994 C., § 11.46.250; Ord. No. 55834, § 2(1O), 1971.)

11.46.260 Misbranded milk or milk products defined.

Milk or milk products are misbranded when:

A. Their container(s) bear or accompany any false or misleading written, printed or graphic matter;

B. Such milk and milk products do not conform to their definitions as contained in this chapter; or

C. Such products are not labeled in accordance with Section 11.46.370 or when such products are labeled with any statement or grade designation not approved by the health officer. (1960 C., § 460.440; 1994 C., § 11.46.260; Ord. No. 55834, § 2(1R1), 1971.)

11.46.270 Optional ingredients defined.

"Optional ingredients" shall mean and include Grade A dry milk products, concentrated milk, concentrated milk products, flavors, sweeteners, stabilizers, emulsifiers, acidifiers, vitamins, minerals, and similar ingredients which may be added to milk products only as approved by the health officer. (1960 C., § 460.420; 1994 C., § 11.46.270; Ord. No. 55834, § 2(1Q), 1971.)

11.46.280 Pasteurization defined.

The terms "pasteurization" and "pasteurized," and similar terms shall mean the process of heating every particle of milk or milk product to at least one hundred forty-five degrees Fahrenheit, and holding it continuously at or above this temperature for at least thirty minutes, or to at least one hundred sixty-one degrees Fahrenheit, and holding it continuously at or above this temperature for at least fifteen seconds, in equipment which is properly operated and approved by the health officer; provided, that milk products which have a higher milkfat content than milk and/or contain added sweeteners shall be heated to at least one hundred fifty degrees Fahrenheit, and held continuously at or above this temperature for at least thirty minutes, or to at least one hundred sixty-six degrees Fahrenheit, and held continuously at or above this temperature for at least fifteen seconds; provided further, that eggnog shall be heated to at least one hundred fifty-five degrees Fahrenheit, and held continuously at or above this temperature for at least thirty minutes, or to at least one hundred seventy-five degrees Fahrenheit, and held continuously at or above this temperature for twenty-five seconds; provided further, that nothing in this definition shall be construed as barring any other pasteurization process which has been recognized by the United States Public Health Service to be equally efficient and which is approved by the State Health Authority and the health officer. (1960 C., § 460.450; 1994 C., § 11.46.280; Ord. No. 55834, § 2(1S), 1971.)

11.46.290 Person defined.

The word "person" shall mean any individual, plant, operator, partnership, corporation, company, firm, trustee, or association. (1960 C., § 460.580; 1994 C., § 11.46.290; Ord. No. 55834, § 2(1CC), 1971.)

11.46.300 Reconstituted milk and milk products defined.

"Reconstituted or recombined milk and/or milk products" shall mean milk or milk products defined in this section which result from the recombining of milk constituents with potable water. (1960 C., § 460.150; 1994 C., § 11.46.300; Ord. No. 55834, § 2(1D), 1971.)

11.46.310 Sanitization defined.

"Sanitization" is the application of any effective method or substance to a clean surface for the destruction of pathogens and of other organisms as far as is practicable. Such treatment shall not adversely affect the equipment, the milk or milk product, or the health of consumers, and shall be acceptable to the health officer. (1960 C., § 460.460; 1994 C., § 11.46.310; Ord. No. 55834, § 2(1T), 1971.)

11.46.320 Skim milk or skimmed milk defined.

"Skim milk or skimmed milk" is milk from which sufficient milkfat has been removed to reduce its milkfat content to less than one-half percent. (1960 C., § 460.190; 1994 C., § 11.46.320; Ord. No. 55834, §(1F), 1971.)

11.46.330 Transfer station defined.

A "transfer station" is any place, premises, or establishment where milk or milk products are transferred directly from one transport tank to another. (1960 C., § 460.550; 1994 C., § 11.46.330; Ord. No. 55834, § 2(1Z1), 1971.)

11.46.340 Vitamin D milk and milk products defined.

"Vitamin D milk and milk products" are milk and milk products, the vitamin D content of which has been increased by an approved method to at least 400 U.S.P. units per quart. (1960 C., § 460.210; 1994 C., § 11.46.340; Ord. No. 55834, § 2(1F), 1971.)

11.46.350 Adulterated or misbranded milk or milk products.

No person shall, within the City of St. Louis, or its police jurisdiction, produce, provide, sell, offer, or expose for sale, or have in possession with intent to sell any milk or milk product which is adulterated or misbranded; provided, that in an emergency, the sale of pasteurized milk and milk products which have not been graded, or the grade of which is unknown, may be authorized by the health officer, in which case such product shall be labeled "ungraded."

No person shall store adulterated milk in equipment that is approved by the health officer for cooling and/or holding of milk under the terms of this chapter.

Any adulterated or misbranded milk or milk product may be impounded by the health officer and disposed of in accordance with applicable laws or regulations. (1960 C., § 461.010; 1994 C., § 11.46.350; Ord. No. 55834, § 2(2), 1971.)

Cases:

Ordinance declaring that milk shall be deemed adulterated if any substance has been mixed with it so as to lower its strength, quality or purity, prohibits the addition of water to milk. *City of St. Louis v. Amelin,* 235 Mo. 669, 139 S.W. 429 (1911).

Conviction for possession of adulterated milk with intent to sell sustained under ordinance, where annatto had been added to milk to make it appear richer in fat. *City of St. Louis v. Jud,* 236 Mo. 1, 139 S.W. 441 (1911).

Where it was not shown that milk shipped from Illinois was still interstate commerce, St. Louis ordinance prohibiting possession of adulterated milk with intent to sell in the city was applicable. *City of St. Louis v. Niehaus,* 236 Mo. 8, 139 S.W. 450 (1911).

11.46.360 Permits.

It shall be unlawful for any person who does not possess a permit from the Board of Public Service of the City of St. Louis to bring into, send into, or receive into the City of St. Louis or its police jurisdiction, for sale, or to sell, or offer for sale therein, or to have in storage milk or milk products; provided, that grocery stores, restaurants, soda fountains, and similar establishments where milk or milk products are served or sold at retail, but not processed, may at the discretion of the health officer be exempt from the requirements of this section.

Only a person who complies with the requirements of this chapter shall be entitled to receive and retain such a permit. Permits shall not be transferable with respect to persons or locations.

Any person making application for such permit shall file a statement giving the information and facts on a form provided by the health officer for the purpose. If any changes are made in the information or facts given, written notice thereof must be given the health officer for insertion and correction in the records of the City.

The health officer shall suspend such permit, whenever he has reason to believe that a public health hazard exists; or whenever the permit holder has violated any of the requirements of this chapter; or whenever the permit holder has interfered with the health officer in the performance of his duties; provided, that the health officer shall, in all cases except where the milk or milk product involved creates, or appears to create, an imminent hazard to the public health; or in any case of a willful refusal to permit authorized inspection; serve upon the holder a written notice of intent to suspend permit, which notice shall specify with particularity the violation(s) in question and afford the holder such reasonable opportunity to correct such violation(s) as may be agreed to by the parties, or in the absence of agreement, fixed by the health officer, before making any order of suspension effective. A suspension of permit shall remain in effect until the violation(s) have been corrected to the satisfaction of the health officer.

Upon repeated violation(s), termination of business, or reasonable cause, the Board of Public Service may revoke such permit following reasonable notice to the permit holder and an opportunity for a hearing at least five days after such notice. This section is not intended to preclude the institution of court action as provided in Section 11.46.380 and Section 11.46.390.

Any person whose permit has been suspended or revoked may make written application for reinstatement of his permit. The application shall contain a

statement that the violation(s) or the conditions believed to have been responsible for the violation(s), specified with particularity, have been corrected. After proper investigation reveals that the violation(s) and/or condition(s) have been satisfactorily corrected, the health officer shall reinstate the suspended permit or recommend to the Board of Public Service that the revoked permit be reinstated. (1960 C., § 462.010; 1994 C., § 11.46.360; Ord. No. 55834, § 2(3), 1971.)

Cases:

City of St. Louis, in the exercise of its police power, may require milk sellers to take out permits. *City of St. Louis v. Kellmann,* 295 Mo. 71, 243 S.W. 134 (1922).

The fact that the selling of milk is a lawful business does not exempt it from reasonable police regulations. *City of St. Louis v. Grafeman Dairy Co.,* 190 Mo. 492, 89 S.W. 617, 1 L.R.A., N.S., 936.

11.46.370 Labeling.

A. All bottles, containers, and packages enclosing milk or milk products shall be conspicuously labeled or marked with:

1. The name of the contents as given in the definitions of this chapter;

2. The word "reconstituted" or "recombined" if the product is made by reconstitution or recombination;

3. The grade of the contents;

4. The word "pasteurized" if the contents are pasteurized and the identity of the plant where pasteurized;

5. The word "raw" if the contents are raw and the name or other identity of the producer;

6. The designation "Vitamin D" and the number of U.S.P. units per quart in the case of vitamin D milk or milk products;

7. The volume or proportion of water to be added for recombining in the case of concentrated milk or milk products;

8. The designation "fortified" and the amount of vitamins and/or minerals in terms of U.S.P. units and/or milligrams per quart in the case of fortified milk or milk products;

9. The words "nonfat milk solids added" and the percentage added if such solids have been added, except that this requirement shall not apply to reconstituted or recombined milk or milk products;

10. The words "artificially sweetened" in the name if non-nutritive and/or artificial sweeteners are used;

11. The common name of stabilizers, distillates, and ingredients.

B. Only the identity of the milk producer shall be required on cans delivered to a milk plant which receives only Grade A raw milk for pasteurization, and which immediately dumps, washes and returns the cans to the milk producer.

C. The identity of both the milk producer and the grade shall be required on cans delivered to a milk plant which receives both Grade A raw milk for pasteurization and ungraded raw milk, and which immediately dumps, washes, and returns the cans to the milk producer.

D. In the case of concentrated milk products, the specific name of the product shall be substitutes for the generic term "concentrated milk products," e.g., "homogenized concentrated milk," "concentrated chocolate flavored lowfat milk."

E. In the case of flavored milk and milk products or flavored reconstituted milk and milk products, the name of the principal flavor shall be substituted for the word "flavored."

F. In the case of cultured milk and milk products, the special type culture used may be substituted for the word "cultured," e.g., "acidophilus buttermilk," "bulgarian buttermilk," and "yogurt."

G. In the case of breed milk and milk products, the special type breed may be substituted for the word "breed," e.g., "guernsey" and "jersey."

H. All bottles, containers and packages enclosing milk and milk products which have not been ultra-high heat treated and aseptically filled, cultured, acidified, aerated or concentrated shall show the date of pasteurization.

I. All vehicles and transport tanks containing milk or milk products shall be legibly marked with the name and address of the milk plant or hauler in possession of the contents.

J. Tanks transporting raw milk and milk products to a milk plant from sources of supply not under the routine supervision of the health officer are required to be marked with the name and address of the milk plant or hauler and shall be sealed; in addition, for each such shipment, a shipping statement shall be prepared containing at least the following information:

1. Shipper's name, address, and permit number;

2. Permit number of hauler, if not employee of shipper;

3. Point of origin of shipment;

4. Tanker identity number;
5. Name of product;
6. Weight of product;
7. Grade of product;
8. Temperature of product;
9. Date of shipment;
10. Name of the supervising health officer at the point of origin;
11. Whether the contents are raw, pasteurized, or otherwise heat treated.

Such statement shall be prepared in triplicate and shall be kept on file by the shipper, the consignee, and the carrier for a period of six months for the information of the health officer.

K. The labeling information which is required on all bottles, containers or packages of milk or milk products shall be in letters of an acceptable size, kind, and color satisfactory to the health officer and shall contain no marks or words which are misleading. (1960 C., § 463.010; 1994 C., § 11.46.370; Ord. No. 55834, § 2(4), 1971.)

McQuillin:

24.418 Milk quality; standards, grading, labeling

11.46.380 Inspection of dairy farms and milk plants.

Each dairy farm, milk plant, receiving station, and transfer station whose milk or milk products are intended for consumption within the City of St. Louis or its police jurisdiction shall be inspected by the health officer prior to the issuance of a permit. Following the issuance of a permit, each dairy farm and transfer station shall be inspected at least once every six months and each milk plant and receiving station shall be inspected at least once every three months. Should the violation of any requirement set forth in Section 11.46.400 be found to exist on an inspection, a second inspection shall be required after the time deemed necessary to remedy the violation, but not before three days; this second inspection shall be used to determine compliance with the requirements of Section 11.46.400. Any violations of the same requirement of Section 11.46.400 on such second inspection shall call for permit suspension in accordance with Section 11.46.360 and/or court action.

Every milk producer, hauler, distributor, or plant operator shall, upon request of the health officer, permit access of officially designated persons to all parts of his establishment or facilities to determine compliance with the provisions of this chapter. A distributor or plant operator shall furnish the health officer, upon request, for official use only, a true statement of the actual quantities of milk and milk products of each grade purchased and sold, and a list of all sources of such milk and milk products, records of inspections, tests, and pasteurization time and temperature records. (1960 C., § 464.010; 1994 C., § 11.46.380; Ord. No. 55834, § 2(5), 1971.)

McQuillin:

24.424 Inspection of premises, equipment, milk

11.46.390 Examination.

During any consecutive six months, at least four samples of raw milk for pasteurization shall be taken from each producer and four samples of raw milk for pasteurization shall be taken from each milk plant after receipt of the milk by the milk plant and prior to pasteurization. In addition, during any consecutive six months, at least four samples of pasteurized milk and at least four samples of each milk product shall be taken from every milk plant. Samples of milk and milk products shall be taken while in possession of the producer or distributor at any time prior to final delivery. Samples of milk and milk products from dairy retail stores, food service establishments, grocery stores, and other places where milk and milk products are sold shall be examined periodically as determined by the health officer; and the results of such examination shall be used to determine compliance with Section 11.46.350, Section 11.46.370, and Section 11.46.450. Proprietors of such establishments shall furnish the health officer, upon his request, with the names of all distributors from whom milk or milk products are obtained.

Required bacterial counts and cooling temperature checks shall be performed on raw milk for pasteurization. In addition, antibiotic tests on each producer's milk or on commingled raw milk shall be conducted at least four times during any consecutive six months. When commingled milk is tested, all producers shall be represented in the sample. All individual sources of milk shall be tested when test results on the commingled milk are positive. Required bacterial counts, coliform determination, phosphatase and cooling temperature checks shall be performed on pasteurized milk and milk products.

Whenever two of the last four consecutive bacteria counts, coliform determinations, or cooling temperatures, taken on separate days, exceed the limit of the

standard for the milk and/or milk product, the health officer shall send a written notice thereof to the person concerned. This notice shall be in effect so long as two of the last four consecutive samples exceed the limit of the standard. An additional sample shall be taken within fourteen days of the sending of such notice, but not before the lapse of three days. Immediate suspension of permit in accordance with Section 11.46.360 and/or court action shall be instituted whenever the standard is violated by three of the last five bacteria counts, coliform determinations, or cooling temperatures.

Whenever a phosphatase test is positive, the cause shall be determined. Where the cause is improper pasteurization, it shall be corrected and any milk or milk product involved shall not be offered for sale.

Samples shall be analyzed at an official or appropriate officially designated laboratory. All sampling procedures and required laboratory examinations shall be in substantial compliance with the latest edition of Standard Methods for the Examination of Dairy Products of the American Public Health Association, and the latest edition of Official Methods of Analyses of the Association of Official Agricultural Chemists. Such procedures and examinations shall be evaluated in accordance with the methods of evaluating milk laboratories recommended by the U.S. Public Health Service. Examinations and tests shall be conducted to detect adulterants, including pesticides, as the health officer shall require. Assays of vitamin D milk or milk products and/or fortified milk and milk products shall be made at least annually in a laboratory acceptable to the health officer. (1960 C., § 464.020; 1994 C., § 11.46.390; Ord. No. 55834, § 2(6), 1971.)

McQuillin:

24.424 Inspection of premises, equipment, milk

11.46.400 Standards.

All Grade A raw milk for pasteurization and all Grade A pasteurized milk and milk products shall be produced, processed, and pasteurized to conform with the following chemical, bacteriological, and temperature standards, and the sanitation requirements of this section.

Grade A raw milk for pasteurization shall be cooled to fifty degrees Fahrenheit or less and maintained thereat until processed; shall not exceed one hundred thousand bacteria per milliliter as individual producer milk and shall not exceed three hundred thousand bacteria per milliliter as commingled milk prior to pasteurization; and it shall produce no detectable zone of bacterial inhibition when tested by the Bacillus subtilis method or equivalent.

Grade A pasteurized milk and milk products shall be cooled to forty-five degrees Fahrenheit or less and maintained thereat except that they may exceed forty-five degrees Fahrenheit as provided herein; except for cultured milk and milk products, shall not exceed twenty thousand bacteria per milliliter; shall not exceed ten coliform per milliliter; and shall contain less than one microgram of phosphatase per milliliter by the Scharer-Rapid method or equivalent.

No process of manipulation other than pasteurization, processing methods integral therewith, and appropriate refrigeration shall be applied to milk and milk products for the purpose of removing or deactivating microorganisms. (1960 C., § 464.030; 1994 C., § 11.46.400; Ord. No. 55834, § 2(7 part), 1971.)

11.46.410 Sanitation—For Grade A raw milk for pasteurization.

Item 1r. Abnormal milk.

Cows which show evidence of the secretion of abnormal milk in one or more quarters based upon bacteriological, chemical, or physical examination, shall be milked last or with separate equipment, and the milk shall be discarded. Cows treated with, or cows which have consumed chemical, medicinal, or radioactive agents which are capable of being secreted in the milk and which, in the judgment of the health officer, may be deleterious to human health, shall be milked last or with separate equipment, and the milk disposed of as the health officer may direct.

Item 2r. Milking barn stable, or parlor construction.

A milking barn, stable, or parlor shall be provided on all dairy farms in which the milking herd shall be housed during milking time operations. The areas used for milking purposes shall:

1. Have floors constructed of concrete or equally impervious material;

2. Have walls and ceilings which are smooth, painted, or finished in an approved manner, in good repair, ceiling dust tight;

3. Have separate stalls or pens for horses, calves, and bulls;

4. Be provided with natural and/or artificial light, well distributed for day and/or night milking;

5. Provide sufficient airspace and air circulation to prevent condensation and excessive odors;

6. Not be overcrowded;

7. Have dust tight covered boxes or bins, or separate storage facilities for ground, chopped or concentrated feed.

Item 3r. Milking barn, stable, or parlor cleanliness.

The interior shall be kept clean. Floors, walls, windows, pipelines, and equipment shall be free of filth and/or litter and shall be clean. Swine and fowl shall be kept out of the milking barn.

Item 4r. Cowyard.

The cowyard shall be graded and drained and shall have no standing pools of water or accumulations of organic wastes; provided, that in loafing or cattle-housing areas, cow droppings and soiled bedding shall be removed, or clean bedding added, at sufficiently frequent intervals to prevent the soiling of the cow's udder and flanks. Waste feed shall not be allowed to accumulate. Manure packs shall be properly drained and shall provide a reasonably firm footing. Swine shall be kept out of the cowyard.

Item 5r. Milkhouse or room construction and facilities.

A milkhouse or room of sufficient size shall be provided, in which the cooling, handling and storing of milk and the washing, sanitizing, and storing of milk containers and utensils shall be conducted.

The milkhouse shall be provided with a smooth floor constructed of concrete or equally impervious material graded to drain and maintained in good repair. Liquid waste shall be disposed of in a sanitary manner; all floor drains shall be accessible and shall be trapped if connected to a sanitary sewer system.

The walls and ceilings shall be constructed of smooth material, in good repair, well painted, or finished in an equally suitable manner.

The milkhouse shall have adequate natural and/or artificial light and be well ventilated.

The milkhouse shall be used for no other purpose than milkhouse operations; there shall be no direct opening into any barn, stable, or into a room used for domestic purposes; provided, that a direct opening between the milkhouse and milking barn, stable, or parlor is permitted when a tight-fitting self-closing door(s) hinged to be single- or double-acting is provided.

Water under pressure shall be piped into the milkhouse.

The milkhouse shall be equipped with a two-compartment wash vat and adequate hot water heating facilities.

When a transportation tank is used for the cooling and storage of milk on the dairy farm, such tank shall be provided with a suitable shelter for the receipt of milk. Such shelter shall be adjacent to, but not part of, the milkroom and shall comply with the requirement of the milkroom with respect to construction, light, drainage, insect and rodent control, and general maintenance.

Item 6r. Milkhouse or room cleanliness.

The floors, walls, ceilings, windows, tables, shelves, cabinets, wash vats, nonproduct contact surfaces of milk containers, utensils, and equipment, and other milkroom equipment shall be clean. Only articles directly related to milkroom activities shall be permitted in the milkroom. The milkroom shall be free of trash, animals, and fowl.

Item 7r. Toilet.

Every dairy farm shall be provided with one or more toilets, conveniently located and properly constructed, operated, and maintained in a sanitary manner. The waste shall be inaccessible to flies and shall not pollute the soil surface or contaminate any water supply.

Item 8r. Water supply.

Water for milkhouse and milking operations shall be from a supply properly located, protected, and operated, and shall be easily accessible, adequate and of a safe, sanitary quality.

Item 9r. Utensils and equipment construction.

All multiuse containers, equipment, and utensils used in the handling, storage, or transportation of milk shall be made of smooth, nonabsorbent, corrosion resistant, nontoxic materials, and shall be so constructed as to be easily cleaned. All containers, utensils, and equipment shall be in good repair. All milk pails used for hand milking and stripping shall be seamless and of the hooded type. Multiple use woven material shall not be used for straining milk. All single service articles shall have been manufactured, packaged, transported, stored, and handled in a sanitary manner and shall comply with the applicable requirements of item 11p of Section 11.46.420. Articles intended for single service use shall not be reused.

Farm milk cooling and holding tanks, welded sanitary piping, and transportation tanks shall comply with the applicable requirements of items 10p and 11p of this section.

Item 10r. Utensils and equipment—Cleaning.

The product contact surfaces of all multiuse containers, equipment, and utensils used in handling, storage, or transportation of milk shall be cleaned after each usage.

Item 11r. Utensils and equipment—Sanitization.

The product contact surfaces of all multiuse containers, equipment, and utensils used in the handling, storage, or transportation of milk shall be sanitized before each usage.

Item 12r. Utensils and equipment—Storage.

All containers, utensils, and equipment used in the handling, storage, or transportation of milk, unless stored in sanitizing solutions, shall be stored to ensure complete drainage, and shall be protected from contamination prior to use.

Item 13r. Utensils and equipment—Handling.

After sanitization, all containers, utensils, and equipment shall be handled in such manner as to prevent contamination of any product contact surface.

Item 14r. Milking—Flanks, udders, and teats.

Milking shall be done in the milking barn, stable, or parlor. The flanks, udders, bellies, and tails of all milking cows shall be free from visible dirt. All brushing shall be completed prior to milking. The udders and teats of all milking cows shall be cleaned and treated with a sanitizing solution just prior to the time of milking, and shall be relatively dry before milking. Wet hand milking is prohibited.

Item 15r. Milking—Surcingles, milk stools, and antikickers.

Surcingles, milk stools, and antikickers shall be kept clean and stored above the floor.

Item 16r. Milking—Transfer and protection of milk.

Each pail or container of milk shall be transferred immediately from the milking barn, stable, or parlor to the milkhouse. No milk shall be strained, poured, transferred, or stored unless it is properly protected from contamination.

Item 17r. Personnel—Hand washing facilities.

There shall be provided adequate hand washing facilities, including lavatory, running hot and cold water, soap or detergent, and individual sanitary towels, in the milkhouse and in or convenient to the milking barn, stable, or parlor.

Item 18r. Personnel cleanliness.

Hands shall be washed clean and dried with an individual sanitary towel immediately before milking, before performing any milkhouse function, and immediately after the interruption of any of these activities. Milkers and milk haulers shall wear clean outer garments while milking or handling milk, milk containers, utensils, or equipment.

Item 19r. Cooling.

Raw milk for pasteurization shall be cooled to fifty degrees Fahrenheit or less within two hours after milking and shall be maintained at that temperature until delivered.

Item 20r. Vehicles.

Vehicles used to transport milk in cans from the dairy farm to the milk plant or receiving station shall be constructed and operated to protect their contents from sun, freezing, and contamination. Such vehicles shall be kept clean, inside and out; and no substance capable of contaminating milk shall be transported with milk.

Item 21r. Insect and rodent control.

Effective measures shall be taken to prevent the contamination of milk, containers, equipment, and utensils by insects and rodents, and by chemicals used to control such vermin. Milkrooms shall be free of insects and rodents. Surroundings shall be kept neat, clean, and free of conditions which might harbor or be conducive to the breeding of insects and rodents. (1960 C., § 464.031; 1994 C., § 11.46.410; Ord. No. 55834, § 2(7 part), 1971.)

11.46.420 Sanitation—For Grade A pasteurized milk and milk products.

A receiving station shall comply with items 1p to 15p, inclusive, and 17p, 20p, and 22p, all as set forth in this section, except that the partitioning requirement of item 5p shall not apply.

A transfer station shall comply with items 1p, 4p, 6p, 7p, 8p, 9p, 10p, 11p, 12p, 14p, 15p, 20p, and 22p; and as climatic and operating conditions require, the applicable provisions of items 2p, and 3p, all as set forth in this section. In every case, overhead protection shall be provided. Facilities for the cleaning and sanitizing of bulk transport tanks shall comply with items 1p, 4p, 6p, 7p, 8p, 9p, 10p, 11p, 12p, 14p, 15p, 20p, and 22p; and as climatic and operating conditions require, the applicable provisions of items 2p and 3p; provided, that in every case, overhead protection shall be provided.

Item 1p. Floors—Construction.

The floors of all rooms in which milk or milk products are processed, handled, or stored, or in which

milk containers, equipment, and utensils are washed, shall be constructed of concrete or other equally impervious and easily cleaned material; and shall be smooth, properly sloped, provided with trapped drains, kept in good repair; provided, that cold storage rooms used for storing milk and milk products need not be provided with floor drains when the floors are sloped to drain to one or more exits; provided further, that storage rooms and storing dry ingredients and/or packaging materials need not be provided with drains; and the floors may be constructed of tightly joined wood.

Item 2p. Walls and ceilings—Construction.

Walls and ceilings of rooms in which milk or milk products are handled, processed or stored, or in which milk containers, utensils and equipment are washed, shall have a smooth, washable, light colored surface, in good repair.

Item 3p. Doors and windows.

Effective means shall be provided to prevent the access of flies and rodents. All openings to the outside shall have solid doors or glazed windows which shall be closed during dusty weather.

Item 4p. Lighting and ventilation.

All rooms in which milk and milk products are handled, processed, or stored and/or in which milk containers, equipment, and utensils are washed shall be well-lighted and well-ventilated.

Item 5p. Separate rooms.

There shall be separate rooms for:

1. Pasteurizing, processing, cooling, and packaging;

2. Cleaning of milk cans and bottles. In addition, plants receiving milk in bulk transport tanks shall provide for cleaning and sanitizing facilities.

Unless all milk and milk products are received in bulk transport tanks, a receiving room separate from rooms 1. and 2. above, shall be required. Rooms in which milk or milk products are handled, processed, or stored, or in which milk containers, utensils, and equipment are washed or stored, shall not open directly into any stable or any room used for domestic purposes.

Item 6p. Toilet-sewage disposal facilities.

Every milk plant shall be provided with toilet facilities conforming with the ordinances of the City of St. Louis. Toilet rooms shall not open directly into any room in which milk and/or milk products are processed. Toilet rooms shall be completely enclosed and shall have tight-fitting self-closing doors. Dressing rooms, toilet rooms, and fixtures shall be kept in a clean condition, in good repair, and shall be well-ventilated and well-lighted. Sewage and other liquid wastes shall be disposed of in a sanitary manner.

Item 7p. Water supply.

Water for milk plant purposes shall be from a supply properly located, protected, and operated, and shall be easily accessible, adequate and of a safe, sanitary quality.

Item 8p. Hand washing facilities.

Convenient hand washing facilities shall be provided, including hot and cold and/or warm running water, soap, and individual sanitary towels or other approved hand-drying devices. Hand washing facilities shall be kept in a clean condition and in good repair.

Item 9p. Milk plant cleanliness.

All rooms in which milk and milk products are handled, processed, or stored, and/or in which containers, utensils, or equipment are washed or stored, shall be kept clean, neat, and free of evidence of insects and rodents. Pesticides shall be safely used. Only equipment directly related to processing operations or to the handling of containers, utensils, and equipment, shall be permitted in the pasteurizing, processing, cooling, packaging, and bulk milk storage rooms.

Item 10p. Sanitary piping.

All sanitary piping, fittings, and connections which are exposed to milk and milk products, or from which liquids may drip, drain, or be drawn into milk or milk products, shall consist of smooth, impervious, corrosion resistant, non-toxic, easily cleanable material. All piping shall be in good repair. Pasteurized milk and milk products shall be conducted from one piece of equipment to another only through sanitary piping; provided, that cottage cheese, cheese dressings, or cheese ingredients may be transported by other methods which protect the product from contamination.

Item 11p. Construction and repair of containers and equipment.

All multiuse containers and equipment with which milk or milk products come into contact will be of smooth, impervious, corrosion-resistant, nontoxic material; shall be constructed for ease of cleaning; and shall be kept in good repair. All single service containers, closures, gaskets, and other articles with which milk or milk products come in contact shall be nontoxic, and shall have been manufactured, packaged, transported, and handled in a sanitary manner. Articles intended for single service use shall not be reused.

Item 12p. Cleaning and sanitizing containers and equipment.

The product contact surfaces of all multiuse containers, utensils, and equipment used in the transportation, processing, handling, and storage of milk and milk products shall be effectively cleaned and shall be sanitized before each use.

Item 13p. Storage of cleaned containers and equipment.

After cleaning, all multiuse milk or milk product containers, utensils, and equipment shall be transported and stored to ensure complete drainage, and shall be protected from contamination before use.

Item 14p. Storage of single service containers, utensils, and materials.

Single service caps, cap stock, parchment paper, containers, gaskets, and other single service articles for use in contact with milk and milk products shall be purchased and stored in sanitary tubes, wrappings, or cartons; shall be kept therein in a clean, dry place until used; and shall be handled in a sanitary manner.

Item 15p. Protection from contamination.

Milk plant operations, equipment, and facilities shall be located and conducted to prevent any contamination of milk and milk products, ingredients, equipment, containers, and utensils. All milk or milk products or ingredients which have been spilled, overflowed, or leaked shall be discarded. The processing or handling of products other than milk and milk products in the pasteurization plant shall be performed to preclude the contamination of such milk and milk products.

Item 16p. Pasteurization.

Pasteurization shall be performed as defined in Section 11.46.280.

Item 17p. Cooling milk.

All raw milk and milk products shall be maintained at fifty degrees Fahrenheit or less until processed. All pasteurized milk and milk products shall be cooled immediately after pasteurization in approved equipment to a temperature of forty-five degrees Fahrenheit or less and maintained thereat until filling or packaging, except that in the case of those to be cultured the temperature may exceed forty-five degrees Fahrenheit during the culturing process. All pasteurized milk and milk products shall be stored at a temperature of forty-five degrees Fahrenheit or less. The temperature of milk and milk products shall not exceed fifty degrees Fahrenheit on vehicles during delivery. Every room or tank in which milk or milk products are stored shall be equipped with an accurate thermometer.

Item 18p. Bottling and packaging.

Bottling and packaging of milk and milk products shall be done at the place of pasteurization in approved mechanical equipment; provided, that cottage cheese and creamed cottage cheese may be transported in sealed containers in a protected, sanitary manner from one plant to another for creaming and/or packaging.

Item 19p. Capping.

Capping or closing of milk and milk product containers shall be done in a sanitary manner by approved mechanical capping and/or closing equipment. The cap or closure shall protect the pouring lip to at least its largest diameter.

Item 20p. Personnel cleanliness.

Hands shall be thoroughly washed before commencing plant functions and as often as may be required to remove soil and contamination. No employee shall resume work after visiting the toilet room without thoroughly washing his hands. All persons engaged in the processing, pasteurization, handling, storage, or transportation of milk, milk products, containers, equipment, and utensils shall wear clean outer garments. The use of tobacco by any person engaged in the processing of milk or milk products is prohibited.

Item 21p. Vehicles.

All vehicles used for transportation or storage of pasteurized milk and milk products shall be constructed and operated so that the milk and milk products are maintained at the temperatures required by this chapter, and are protected from sun, from freezing and from contamination.

Item 22p. Surroundings.

Milk plant surroundings shall be kept neat, clean and free from conditions which might attract or harbor flies, other insects, and rodents, or which otherwise constitute a nuisance. (1960 C., § 460.032; 1994 C., § 11.46.420; Ord. No. 55834, § 2(7 part), 1971.)

11.46.430 Animal health.

All milk for pasteurization shall be from herds which are located in a Modified Accredited Tuberculosis Area as determined by the U.S. Department of Agriculture; provided, that herds located in an area that fails to maintain such accredited status shall have been accredited by said Department as tuberculosis free, or shall have passed an annual tuberculosis test.

All milk for pasteurization shall be from herds under a brucellosis eradication program which meets one of the following conditions:

1. Located in a Certified Brucellosis-Free Area as defined by the U.S. Department of Agriculture and enrolled in the testing program for such areas; or

2. Located in a modified certified Brucellosis Area as defined by the U.S. Department of Agriculture and enrolled in the testing program for such areas; or

3. Meet U.S. Department of Agriculture requirements for an individually certified herd; or

4. Participating in a milk ring testing program which is conducted on a continuing basis at intervals of not less than every three months nor more than every three months with individual blood tests on all animals in herds showing suspicious reactions to the milk ring test; or

5. Have an individual blood agglutination test annually with an allowable maximum grace period not exceeding two months.

For all diseases the health officer shall require such physical, chemical, or bacteriological tests as he deems necessary. The diagnosis of other diseases in dairy cattle shall be based upon the findings of a licensed veterinarian or a veterinarian in the employ of an official agency. Any diseased animal disclosed by such test(s) shall be disposed of as the health officer directs. (1960 C., § 464.040; 1994 C., § 11.46.430; Ord. No. 55834, § 2(8), 1971.)

McQuillin:

24.425 Inspection and tests of cattle

11.46.440 Milk and milk products which may be sold.

Only Grade A pasteurized milk and milk products shall be sold to the final consumer, or to restaurants, soda fountains, grocery stores, or similar establishments; provided, that in an emergency, the sale of pasteurized milk and milk products which have not been graded, or the grade of which is unknown, may be authorized by the health officer; in which case such milk products shall be labeled "ungraded." (1960 C., § 465.010; 1994 C., § 11.46.440; Ord. No. 55834, § 2(9), 1971.)

11.46.450 Transferring—Storing—Vehicles.

Except as permitted in this section, no milk producer or distributor shall transfer milk or milk products from one container or tank truck to another on the street, in any vehicle, store, or in any place except a milk plant, receiving station, transfer station, or milkhouse especially used for that purpose. The dipping or ladling of milk or fluid milk products is prohibited.

It is unlawful to sell or serve any milk or fluid milk product except in the individual, original container received from the distributor, or from an approved bulk dispenser; provided, that this requirement shall not apply to milk for mixed drinks requiring less than one-half pint of milk or to cream, whipped cream, or half and half which is consumed on the premises and which may be served from the original container of not more than one-half gallon capacity, or from a bulk dispenser approved for such service by the health officer.

It is unlawful for any hotel, soda fountain, restaurant, grocery store, hospital, or similar establishment to sell or serve any pasteurized milk or milk product which has not been continually stored or displayed while in its possession at a temperature of forty-five degrees Fahrenheit or less. If containers of pasteurized milk or milk products are stored in ice, the storage container shall be properly drained.

No ungraded milk or ungraded milk products shall be processed, handled, or stored in a room with graded milk or milk products except upon written permission of the health officer.

All vehicles used for the transportation or distribution of milk or milk products shall be reasonably adapted to modem sanitary requirements, must display the assigned permit number and be subject to the approval of health officer. Every bulk tank truck operator shall obtain written approval from the health officer and shall use methods and procedures as the health officer may prescribe to collect samples, and to collect and transport the milk. (1960 C., § 465.020; 1994 C., § 11.46.450; Ord. No. 55834, § 2(10), 1971.)

11.46.460 Milk and milk products from points beyond the limits of routine inspection.

Milk and milk products from points beyond the limits of routine inspection of the City of St. Louis or its police jurisdiction may be sold in the City of St. Louis or its police jurisdiction, provided they are produced and pasteurized under regulations which are substantially equivalent to this chapter and have been awarded an acceptable milk sanitation compliance and enforcement rating made by a state milk sanitation rating officer certified by the U.S. Public Health Service

and are approved by the health officer. (1960 C., § 465.030; 1994 C., § 11.46.460; Ord. No. 55834, § 2(11), 1971.)

11.46.470 Future dairy farms and milk plants.

Properly prepared plans for all milkhouses, milking barns, stables, parlors, transfer stations, receiving stations, and milk plants regulated under this chapter which are hereafter constructed, reconstructed, or extensively altered, shall be submitted to the health officer for written approval before work is begun. (1960 C., § 465.040; 1994 C., § 11.46.470; Ord. No. 55834, § 2(12), 1971.)

11.46.480 Personnel heath.

No person affected with any disease in a communicable form, or while a carrier of such disease, shall work at any dairy farm or milk plant in any capacity which brings him into contact with the production, handling, storage, or transportation of milk, milk products, containers, equipment, and utensils; and no dairy farm or milk plant operator shall employ in any such capacity any such person or any person suspected of having any disease in a communicable form, or of being a carrier of such disease. Any producer or distributor of milk or milk products, upon whose dairy farm, or in whose milk plant any communicable disease occurs, or who suspects that any employee has contracted any disease in a communicable form, or has become a carrier of such disease, shall notify the health officer immediately. (1960 C., § 465.050; 1994 C., § 11.46.480; Ord. No. 55834, § 2(13), 1971.)

11.46.490 Procedure when infection is suspected.

When reasonable cause exists to suspect the possibility of transmission of infection from any person concerned with the handling of milk and/or milk products, the health officer is authorized to require any or all of the following measures:

1. The immediate exclusion of that person from handling milk;

2. The immediate exclusion of the milk supply concerned from distribution and use; and

3. Adequate medical and bacteriological examination of the person, of his associates and of his and their body discharges. (1960 C., § 465.060; 1994 C., § 11.46.490; Ord. No. 55834, § 2(14), 1971.)

11.46.500 Enforcement.

This chapter shall be enforced by the health officer in accordance with the latest Grade A Pasteurized Milk Ordinance with Administrative Procedures as recommended by the United States Public Health Service, a certified copy of which shall be on file at the City Registrar. Where the mandatory compliance with provisions of the appendixes is specified, such provisions shall be deemed a requirement of this chapter.

The health officer shall have the right to enter and have full access to all places, buildings, and conveyances wherein milk or milk products are produced, handled, processed, stored, transported, or kept for sale for the purpose of making inspections and for taking samples of milk and milk products therefrom.

The health officer is hereby empowered to withhold from delivery or sale, at such place and under such conditions as he may direct, any milk or milk products that he has probable cause to believe are adulterated, misbranded, tainted, diseased, or unwholesome, and he may immediately cause samples of the milk products to be tested or analyzed by approved and standard methods. If the health officer determines that such milk or milk products are adulterated, misbranded, tainted, diseased or unwholesome, such milk or milk products shall be condemned by the health officer, and shall be destroyed or otherwise disposed of as he may direct. If the health officer determines that such milk or milk products are not adulterated, misbranded, tainted, diseased, or unwholesome, then he shall immediately withdraw his order withholding the same from delivery or sale. (1960 C., § 465.070; 1994 C., § 11.46.500; Ord. No. 55834, § 2(15), 1971.)

11.46.510 Collection and delivery from farms to milk plants or transfer stations.

All milk stored in cans on the dairy farm shall be collected and delivered to a milk plant at least once daily and all milk stored in farm milk cooling and holding tanks on the dairy farm shall be collected and delivered to a milk plant or transfer station at least once every other day. Permit holders violating the requirements of this section, except during an emergency recognized by the Health Commissioner, shall be subject to suspension of permit until evidence shows that compliance with this section will be secured. (1960 C., § 465.080; 1994 C., § 11.46.510; Ord. No. 55834, § 2(16), 1971.)

11.46.520 Interference with health officer.

Any person who interferes with the health officer or police officers in any manner in their performance of any duty enjoined by this chapter, or who conceals any

milk or milk product so as to prevent inspection or sampling, or who runs or drives away to prevent inspection or sampling of any milk or milk product shall be deemed guilty of a misdemeanor, and upon conviction shall be fined as provided in Section 11.46.540. (1960 C., § 465.090; 1994 C., § 11.46.520; Ord. No. 55834, § 2(17), 1971.)

11.46.530 Inspection fees.

A. An inspection fee not to exceed eight cents on each one hundred pounds of milk or milk products (except half and half and cream products), nor two cents on each pound of butterfat in half and half and cream products, shall be paid to the City of St. Louis on or before the twentieth day of each month for the preceding calendar month. This inspection fee shall be paid as follows:

1. By all milk distributors inspected by the health officer on all Grade A raw milk and lowfat milk, skim milk, or cream therefrom, received; and on all ungraded raw milk and lowfat milk, skim milk, or cream therefrom which is processed into pasteurized milk or milk products;

2. By all milk producers inspected by the health officer on all Grade A raw milk produced which is not received by a milk distributor inspected by the health officer, except that the milk distributor inspected by the health officer who normally receives the milk shall pay the inspection fee if he chooses to divert such milk without receiving it to a milk distributor not inspected by the health officer;

3. By all milk distributors beyond the limits of routine inspection whose milk and milk products are distributed in the City of St. Louis as provided in Section 11.46.460 on all pasteurized milk or milk products as defined in this chapter sold in the City of St. Louis to persons other than a milk distributor;

4. By all milk distributors holding a Board of Public Service milk permit on all pasteurized milk or milk products brought into the City of St. Louis from a milk distributor beyond the limits of routine inspection whose milk and milk products are distributed in the City of St. Louis as provided in Section 11.46.460:

a. Provided, that inspection by the health officer for determinations under Section 11.46.460 shall not be used as a basis for collection of this inspection fee; and

b. Provided, that no milk distributor shall have to pay an inspection fee on any milk or milk product on which a similar inspection fee or tax has been paid to another inspecting agency within whose jurisdiction milk and milk products under the inspection of the health officer of the City of St. Louis are being distributed without application of that agency's similar fee or tax, although the monthly statement prescribed in this section shall still be required; and

c. Provided, that in the case of a producer-distributor all milk produced by him as a producer shall be considered as received by him as a milk distributor; and

d. Provided, that no milk distributor or milk producer shall have to pay an inspection fee which has been paid to the City by another distributor or milk producer; and

e. Provided further, that each milk distributor, milk producer, or producer-distributor shall only be liable for payment of inspection fees on milk or milk products as provided for in this section and shall not be liable for the failure of other milk distributors, milk producers, or producer-distributors to make such payment.

B. Every milk distributor, milk producer-distributor subject to payment of an inspection fee shall on or before the twentieth day of each month, file with the health officer on a form provided by him a statement of the number of pounds of milk or milk product, and of butterfat in half and half and cream products for which he is subject to inspection fee during the preceding calendar month and the classified usage of all milk and milk products utilized. The health officer is hereby authorized to investigate the correctness, accuracy and completeness of the reports required and for that purpose shall have access at all reasonable times to all books and documents bearing on the amount of milk or milk products received, produced, or sold; provided, that such information shall not be disclosed, divulged or made public, except that:

1. Such information may be furnished to other administrative officials in a regular course of their official duties;

2. Such information may be combined and published in the form of general statistical studies or data in which the identity of the person furnishing such information or from whom it was obtained shall not be disclosed;

3. Such information may be offered in evidence by the health officer in any administrative hearing held pursuant to this chapter or in civil actions at law for the

collection of such inspection fees, but the information obtained under this section shall never be used to support a prosecution under Section 11.46.400.

C. All fees collected under the provisions of this chapter shall be deposited with the treasurer of the City of St. Louis and shall be drawn upon by the Comptroller pursuant to appropriations duly made for the salaries and necessary expenses of duly authorized personnel of the milk control section, and the cost of such supplies and equipment and such other expenses as may be required for the operation of the milk control section.

D. In order to determine the rates at which the inspection fees shall be paid the health officer is authorized to gather data pertaining to the anticipated receipts and sales of milk and milk products and butterfat, and make a determination in relation to the necessary cost of enforcing the provisions of this chapter and shall fix the rates of inspection fee for the quarterly periods within the limits hereinbefore set forth so as to assure a sum sufficient to defray the cost over such period, and shall report his findings to the Board of Estimate and Apportionment, and upon approval by such board, the fee so fixed shall be paid for the ensuing three months, as herein provided. If changes in inspection fees are not established on or before the second Monday of a quarterly period, then the fees last previously established shall be the fees for the current period.

E. All unspent inspection fees collected and deposited with the treasurer of the City of St. Louis under the authority granted by Chapters 460 through 467 inclusive, Revised Code of St. Louis, 1960, as amended by Ordinance 50428 shall be drawn upon by the Comptroller as provided in this section. (1960 C., § 466.010; 1994 C., § 11.46.530; Ord. No. 55834, § 2(18), 1971.)

11.46.540 Penalty for violation.

Any person who shall violate, or fail to comply with, or who shall willfully connive at or assist in the violation or failure to comply with any provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than one dollar nor more than five hundred dollars. Each day any violation of any provision of this chapter shall continue shall constitute a separate offense. (1960 C., § 467.010; 1994 C., § 11.46.540; Ord. No. 55834, § 2(19), 1971.)

Chapter 11.48

MEAT AND MEAT PRODUCTS

RSMo:

RSMo Ch. 196 (2016) Food, drugs and tobacco

RSMo 196.160 (2016) Lawful to sell goat meat

RSMo 570.140 (2016) Deceptive business practices

City Counselor Ops.: 8547, 8769

McQuillin:

24.411 Meat

Sections:

11.48.010 Definitions.

11.48.020 License—Retail meat shops.

11.48.030 License—Permit prerequisite.

11.48.040 Permit—Required.

11.48.050 Permit—Establishments outside City—Required.

11.48.060 Permit—Establishments outside City—Obtaining.

11.48.070 Permit—Application.

11.48.080 Permit—Certification of health officer.

11.48.090 Permit—Revocation—Nontransferable.

11.48.100 Permit—Rules of board.

11.48.110 Display and refrigeration.

11.48.120 Adulteration—Prohibited.

11.48.130 Adulteration—Penalty for violation.

11.48.140 Prepackaged meat and meat products.

11.48.150 Retail meat shops to be kept clean.

11.48.160 Horse or mule meat.

11.48.170 Meat control section—Established.

11.48.180 Meat control section—Chief meat inspector.

11.48.190 Meat control section—Veterinarians.

11.48.200 Meat control section—Sanitarians.

11.48.210 Meat control section—Accountants.

11.48.220 Meat control section—Clerks and stenographers.

11.48.230 Inspection brand.

11.48.240 Inspections—General sanitation.

11.48.250 Inspections—Ante-mortem.

11.48.260 Inspections—Post-mortem.

11.48.270 Inspections—Reinspection.
11.48.280 Inspections—Withdrawal.
11.48.290 Inspections—Personnel.
11.48.300 Inspections—Facilities.
11.48.310 Inspections—Inspector's accommodations.
11.48.320 Inspections—Vehicles and containers.
11.48.330 Official numbers.
11.48.340 Labels.
11.48.350 Brands.
11.48.360 Work orders.
11.48.370 Right of entry.
11.48.380 Interference with inspection or sampling.
11.48.390 Sampling.
11.48.400 Condemnation, retention and holding.
11.48.410 Counterfeiting.
11.48.420 Rules and regulations.
11.48.430 Hours of operation.
11.48.440 Inspector's work time.
11.48.450 Inspection fees—Slaughtering plants outside City.
11.48.460 Inspection fees—Processing plants outside City.
11.48.470 Inspection fees—Storage facilities outside City.
11.48.480 Inspection fees—Deposits.
11.48.490 Disposition of fees and overtime charges.
11.48.500 Mileage charges.
11.48.510 General sanitation.
11.48.520 Floors.
11.48.530 Walls and ceilings.
11.48.540 Insects and vermin.
11.48.550 Lighting and ventilation.
11.48.560 Water supply.
11.48.570 Handwashing facilities.
11.48.580 Separation of operation.
11.48.590 Pens.
11.48.600 Cleaning utensils and equipment.
11.48.610 Poisonous utensils and equipment.
11.48.620 Premises.
11.48.630 Disposal of liquid and solid wastes.
11.48.640 Accommodations and facilities.
11.48.650 Separate facilities for cleaning utensils and equipment.
11.48.660 Construction of equipment.
11.48.670 Employee cleanliness and health.
11.48.680 Handling and storage of edible meat.
11.48.690 Denaturing and labeling inedible meat.
11.48.700 Penalty for violation.

11.48.010 Definitions.

For the purpose of this chapter the following words shall have the meanings ascribed to them in this section:

A. "Adulteration" means the addition of any substance which impairs the wholesomeness of the product or which contains any dye, coloring, preservative, sodium sulphite, sodium benzoate, or other added chemical whereby damage or inferiority is concealed, or whereby it is made to appear of better or greater quality or value than it is, or which is poisonous or injurious to health, or which contains any substance mixed therewith so as to lower, mask, or injuriously affect the strength, quality or purity of such meat, meat products, or meat food products.

B. "Approved," as used in regard to utensils, materials, techniques, and processes, means satisfactory to the health officer and meeting the requirements of this chapter and the standards and specifications set forth in the rules and regulations, made and adopted hereunder, established to prevent the use and consumption of unsound, unhealthful, unwholesome, diseased, contaminated, adulterated or otherwise unfit or inedible meat. As used in regard to sources of supply, the term refers to such sources as operate under permits issued by the Board of Public Service of the City or those furnished inspection services by the meat inspection branch of the United States Department of Agriculture.

C. "Board of public service" means the Board of Public Service of the City.

D. "Carcass" means all parts, including viscera, of a slaughtered animal that are capable of being used for human food.

E. "Distributor" means a person, firm or corporation, operating independently as a wholesaler to purvey product to retail outlets. He may or may not operate his own storage facilities or trucks.

F. "Establishment" means any slaughtering, meat canning, curing, smoking, packing, rendering, processing, storing or other similar establishment, at which inspection is maintained under this chapter.

G. "Meat processing establishment" means any establishment in which meat or meat byproduct is reduced in size by cutting, sawing, or grinding, or is manufactured into meat food products, provided that any establishment that sells only to the retail trade, such as a retail grocery or retail meat market, shall not be termed a meat processing establishment, if all product is sold to the ultimate consumer on or at the premises where prepared or processed.

H. "Meat slaughtering establishment" means an establishment where cattle, sheep, swine, goats, horses or mules are slaughtered and dressed for human consumption, but where the carcass is not divided beyond the primal parts.

I. "Slaughtering and processing establishment" means establishments in this class may conduct operations coming under both Subsections G. and H.

J. "Storage establishment" means a wholesale storage facility where refrigerated storage is the only operation and there is no subdivision of the carcass below primal parts, as commonly accepted in the meat industry, and no change in character of the meat by any process.

K. "Health Officer" means the Health Commissioner of the City or his duly appointed agent or representative.

L. "Immediate container or true container" means the unit, pan, pot, tin, canvas or other receptacle or covering in which any product is customarily shipped.

M. Inspection marks, brands and legends.

1. "Condemned" means the animals so marked have been inspected and found to be immature, in a dying condition, or to have died otherwise than by slaughtering, or to be affected with any other condition or disease that would require condemnation of the carcass.

2. "Inspected and condemned" means that the carcass, viscera, part of carcass, meat, meat by-product, meat food product so marked or identified is unsound, unhealthful, or otherwise unfit for human food.

3. "Inspected and passed" means the product so marked has been inspected and passed under the provisions of this chapter and, at the time it was inspected, passed and so marked, it was found to be sound, wholesome and fit for human food.

4. "Passed for cooking" means the product so marked has been inspected and passed on condition that it be rendered into lard, rendered pork fat or tallow or otherwise cooked by a method approved by the health officer.

5. "Passed for refrigeration" shall mean the product so identified has been inspected and passed on condition that it be refrigerated or otherwise handled by a method approved by the health officer.

6. "Retained" means that the carcass, viscera, part of the carcass, meat, meat by-product, meat food product so marked or identified is held for further inspection by the health officer to determine its disposal.

7. "Suspect" means that the animal so marked is suspected of being affected with a disease or condition which may require its condemnation in whole or in part when slaughtered and is subject to further examination by the health officer to determine its disposal.

N. "Meat" means the edible part of the muscle of cattle, sheep, swine, goats, horses and mules, which is skeletal or which is found in the tongue, in the diaphragm, in the heart or in the esophagus with or without the accompanying and overlying fat and the portions of bone, skin, sinew, nerve, and blood vessels which normally accompany the muscle tissue and which are not separated from it in the process of dressing. It does not include the muscle found in the lips, snout, or ears.

O. "Meat by-product" means any edible part other than meat which has been derived from one or more cattle, swine, sheep, goats, horses or mules such as tripe, lungs, liver, spleen, kidneys, brains, sweetbreads, chitterlings, feet, snouts, ears, tails.

P. "Meat food products" mean any article of food or any article intended for or capable of being used as human food, which is derived or prepared in whole or in substantial and definite part from any portion of any cattle, sheep, swine, goat, horse, or mule, except such articles as organo-therapeutic substances, meat juice, meat extract and the like which are only for medicinal purposes and are advertised only to the medical sciences.

Q. "Meat products" mean those products, coming under the definition of meat which are offered for sale with no change in character other than that they may be subdivided further than the commonly accepted primal parts or wholesale cuts of the carcass.

R. "Misbranded" means all meat, meat products, or meat food products, the label of which bears any

statement, design or device regarding such article, or the ingredients or substitutes contained therein, which shall be false or misleading.

S. "Person" means a natural person, individual, firm, partnership, corporation, company, society or association. This term shall import either the singular or the plural, whichever is applicable.

T. "Product" means any part or all of meat, meat by-product, meat product or meat food product.

U. "Retail meat shop" means an establishment where meat, meat products, meat by-products, meat food products, are prepared or displayed for sale to the ultimate consumer in retail trade on the same premises and where no wholesale operations or street peddling are carried on, by such establishment, from the same premises.

V. "Shipping container or outside container" means the box, bag, barrel, crate, or other receptacle or covering enclosing any product packed in one or more immediate or true containers. (1948 C., Ch. 39, § 1; 1960 C., § 473.010; 1994 C., § 11.48.010; Ord. No. 48606, § 1(1), 1957.)

11.48.020 License—Retail meat shops.

Any keeper of a retail meat shop who shall fail to obtain a merchant's license or shall fail to keep such license posted in his shop shall be deemed guilty of a misdemeanor. (1948 C., Ch. 39, § 2; 1960 C., § 473.020; 1994 C., § 11.48.020; Ord. No. 48606, § 1(2), 1957.)

11.48.030 License—Permit prerequisite.

The License Collector shall issue no license to a meat slaughtering, processing, wholesale storing, or distributing establishment unless the application therefor is accompanied by a certificate from the Board of Public Service reciting that the applicant is the holder of a permit to operate such business, provided that no permit shall be required for retail establishments as defined in Section 11.48.010.G and U.

When the health officer finds that an establishment is operating in violation of this chapter he shall notify, in writing, the License Collector that such is the case and recommend that any existing license be cancelled. (1948 C., Ch. 39, § 24; 1960 C., §§ 474.170, 474.180; 1994 C., § 11.48.030; Ord. No. 48606, § 1(24), 1957.)

11.48.040 Permit—Required.

It shall be unlawful for any person to engage in the business of slaughtering animals for human food, making or preparing meat products, manufacturing or processing meat food products, cleansing or rendering any part of the carcass of such animals to be used as or in the preparation of human food, or maintaining a wholesale storage or distribution facility for any meat or product within the City without first having applied for and obtained from the Board of Public Service a permit to engage in such business except in a plant or establishment under the inspection of the meat inspection branch of the United States Department of Agriculture, or in an establishment defined as a retail market in Section 11.48.010.G and U. Permits when granted shall remain in effect until revoked for cause by the Board of Public Service. (1948 C., Ch. 39, § 16; 1960 C., § 474.080; 1994 C., § 11.48.040; Ord. No. 48606, § 1(16), 1957.)

11.48.050 Permit—Establishments outside City—Required.

It shall be unlawful for any person to transport into or to sell, within the City, meat or product slaughtered or processed in a plant operating outside the boundaries of the City of St. Louis and not under inspection by the meat control section of the City or the meat inspection branch of the United States Department of Agriculture, unless such plant shall have made application for and obtained from the Board of Public Service a reciprocity permit. Such permits when granted, shall remain in effect for one year unless sooner revoked for cause by the Board of Public Service and may be renewed upon application. (1948 C., Ch. 39, § 17; 1960 C., § 474.090; 1994 C., § 11.48.050; Ord. No. 48606, § 1(17), 1957.)

11.48.060 Permit—Establishments outside City—Obtaining.

Establishments located outside the City of St. Louis may obtain permits for merchandising their product in the City in either of two ways:

A. Slaughtering plant, processing plants, storage facilities, and wholesale distributors located outside of the City may obtain a permit as a regularly inspected plant under the St. Louis meat control section inspection program if, in the opinion of the health officer, sufficient personnel for making inspections is available and the travel time involved would not be excessive. All inspections under this plan must be made by regularly appointed St. Louis meat control section employees and an inspection fee shall be paid by the establishment for this service at the rates as provided in this chapter. A mileage fee in addition to the inspection fees, may be charged to reimburse the City for travel expense outside

of the City for inspections as provided in Section 11.48.500. Plants operating under the provisions of this subsection shall submit to the chief meat inspector the same reports as required from plants operating within the City.

B. Permission may be granted to plants located outside the City of St. Louis and not under the inspection of the St. Louis meat control section or the meat inspection branch, United States Department of Agriculture to bring into the City and offer for sale meats, meat products, meat by-products, or meat food products prepared therein provided that the municipalities or other political subdivision in which such plants are located have passed a meat inspection ordinance or made and adopted meat inspection regulations that conform to this chapter in all essential details and that such municipalities or political subdivisions maintain an inspection service that is approved by the Health Commissioner of St. Louis as equivalent to the meat inspection program of the City of St. Louis; and provided further that the Health Commissioner or his authorized representative shall have free access at all times to inspect the sanitary conditions of such plants and the manner in which such inspection is being maintained; and provided further that the permit requirements of this chapter are satisfied.

The plant holding such permit shall submit or have submitted to the Health Commissioner each month, a copy of the inspection form showing the sanitation conditions in the plant, prepared and certified by the approved official health agency performing the inspections. (1948 C., Ch. 39, § 18; 1960 C., § 474.100; 1994 C., § 11.48.060; Ord. No. 48606, § 1(18), 1957.)

11.48.070 Permit—Application.

Every application for any permit provided for by this chapter shall be in the form approved by the Board of Public Service and shall state the name and address of the applicant, the precise nature of the business to be carried on, the extent of his interest in the business for which the permit is desired, and, if the applicant is not the owner of such business, then the application shall state name and address of the owner; such application shall further state the location of the business for which the permit is desired and shall be submitted together with such plans and specifications and other information as may be required by the Board of Public Service or the health officer.

The permit application for any type of permit for plants outside the City shall be accompanied by a deposit as specified in Section 11.48.480. (1948 C., Ch. 39, § 19; 1960 C., § 474.110; 1994 C., § 11.48.070; Ord. No. 48606, § 1(19), 1957.)

11.48.080 Permit—Certification of health officer.

The Board of Public Service shall not issue a permit to engage in any business covered by this chapter until the health officer has certified to the Board of Public Service that the applicant has complied with the provisions of this chapter and with all laws, ordinances and regulations applicable to such business. (1948 C., Ch. 39, § 20; 1960 C., § 474.120; 1994 C., § 11.48.080; Ord. No. 48606, § 1(20), 1957.)

11.48.090 Permit—Revocation—Nontransferable.

The Board of Public Service shall have power, upon reasonable notice and a hearing thereon, to revoke any permit issued pursuant to this chapter if the establishment operating under such permit does not comply with its provisions and with all ordinances and lawful regulations of the Health Commissioner applicable to such establishments, or if the holder of the permit shall have been repeatedly convicted of violating the ordinances of the City or the laws of the State of Missouri relating to the business in which he or it is engaged, or if any false or misleading statement upon a material matter shall be made by the applicant in connection with the issuance of such permit. Permits shall not be transferable with respect to persons or locations. (1948 C., Ch. 39, § 21; 1960 C., §§ 474.130, 474.140; 1994 C., § 11.48.090; Ord. No. 48606, § 1(21), 1957.)

11.48.100 Permit—Rules of board.

The Board of Public Service is authorized to adopt such rules and regulations governing its procedures relating to issuance and revocation of permits not inconsistent with the provisions of this chapter. (1948 C., Ch. 39, § 23; 1960 C., § 474.160; 1994 C., § 11.48.100; Ord. No. 48606, § 1(23), 1957.)

11.48.110 Display and refrigeration.

No person shall cause the sidewalk display of meat or meat products at any place within the City or cause any meat or meat products to be displayed on, above or over any sidewalk, street, alley, or other public place within the City, nor display meat or product in such manner that said meat or product may be subjected to handling or contamination by customers or to contam-

ination by any other animal, vegetable, or chemical source, whereby substances injurious to health might be added to the food.

No meat or other perishable product, unless enclosed in a sealed container and sterilized completely, shall be stored or displayed at a temperature of above fifty degrees Fahrenheit. (1948 C., Ch. 39, § 3; 1960 C., § 473.030; 1994 C., § 11.48.110; Ord. No. 48606, § 1(3), 1957.)

11.48.120 Adulteration—Prohibited.

No person shall within the City manufacture, produce, sell, offer for sale, any adulterated meat, meat products, or meat food products intended for human consumption. (1948 C., Ch. 39, § 7; 1960 C., § 473.090; 1994 C., § 11.48.120; Ord. No. 48606, § 1(7), 1957.)

RSMo:

RSMo 265.442 (2016) Transportation or sale of adulterated, misbranded or certain unmarked meats prohibited.

11.48.130 Adulteration—Penalty for violation.

Any person who shall violate any of the provisions of Section 11.48.120 shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars or by imprisonment in the workhouse for not more than six months, or by both such fine and imprisonment. (1948 C., Ch. 39, § 8; 1994 C., § 11.48.130; Ord. No. 48606, § 1(8), 1957.)

11.48.140 Prepackaged meat and meat products.

Prepackaged fresh meat or meat food products may be sold in open, self-service, refrigerated cabinets in retail meat shops if each such cabinet is at all times maintained at a temperature not higher than thirty-six degrees Fahrenheit at the cooling surface, or not higher than fifty degrees Fahrenheit at the rim of the cabinet, and if each portion of meat so sold is thoroughly prepackaged by wrapping and completely sealed so as to prevent contamination of the product. All such packages shall be legibly labeled so as to comply with the ordinances of the City, and such regulations as have been made and adopted to cover such operations.

No prepackaged fresh meat or fresh meat products shall be sold or offered for sale at retail unless there be displayed upon such fresh meat or fresh meat products or on the containing package, words and figures noting the place where such fresh meat or fresh meat products was prepackaged.

If prepackaged fresh meat or fresh meat products are transferred from the first place where offered for sale at retail to another place to be offered for sale at retail, then the date when first offered for sale at retail shall be plainly stamped on such fresh meat or fresh meat products or on the containing package.

Noncompliance with any of the provisions of this section shall be punishable by a fine of not less than twenty-five dollars nor more than two hundred dollars and each failure to comply with any fresh meat or fresh meat products prepackaged hereunder shall constitute a separate offense. (1948 C., Ch. 39, § 4; 1960 C., § 473.050; 1994 C., § 11.48.140; Ord. No. 54630, §§ 2, 3, 1967; Ord. No. 48606, § 1(4), 1957.)

11.48.150 Retail meat shops to be kept clean.

Every person who is duly licensed to keep a retail meat shop shall keep it properly cleaned and free from all foul smells and nuisances of every description and on failure thereof shall be deemed guilty of a misdemeanor. (1948 C., Ch. 39, § 5; 1960 C., § 473.060; 1994 C., § 11.48.150; Ord. No. 48606, § 1(5), 1957.)

11.48.160 Horse or mule meat.

It shall be unlawful to slaughter horses or mules or handle the meat or meat products thereof in establishments engaged in the slaughter of cattle, sheep, swine or goats or in the manufacture of meat food products therefrom.

No person shall sell or offer for sale or have in possession with intent to sell any horse or mule meat without having attached thereto a tag or label plainly and legibly identifying such meat as horse or mule meat, or without having prominently displayed over or in conjunction with such meat a legible sign or placard identifying such meat as horse or mule meat, and without also advising the purchaser thereof by verbal or written notice that such meat is horse or mule meat. All such notices, tags, or labels shall set forth the true name of the animal from which such meat or flesh was taken. (1948 C., Ch. 39, § 6; 1960 C., § 473.080; 1994 C., § 11.48.160; Ord. No. 48606, § 1(6), 1957.)

RSMo:

RSMo 196.150(2016) Sale of horse and mule meat.

11.48.170 Meat control section—Established.

There is hereby established in the Division of Health of the Department of Health and Hospitals a meat

control section under the direction of the Health Commissioner. (1948 C., Ch. 39, § 9; 1960 C., § 474.010; 1994 C., § 11.48.170; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(9), 1957.)

RSMo:

RSMo 265.300 et seq. (2016) Meat inspection.

11.48.180 Meat control section—Chief meat inspector.

There shall be a chief meat inspector whose duty it shall be to supervise and direct the activities of the meat control section and carry out the provisions of ordinances relating to the slaughter, processing, handling, storage, and distribution of meat, meat by-products, meat products, and meat food products in wholesale trade in the City of St. Louis, Missouri. (1948 C., Ch. 39, § 10; 1960 C., § 474.020; 1994 C., § 11.48.180; Ord. No. 48606, § 1(10), 1957.)

11.48.190 Meat control section—Veterinarians.

There shall be a sufficient number of veterinarians to assist the chief meat inspector in making such administrative and survey field contacts as he may assign or by assuming the responsibility for routine or ante-mortem and post-mortem inspections as may be necessary. (1948 C., Ch. 39, § 11; 1960 C., § 474.030; 1994 C., § 11.48.190; Ord. No. 48606, § 1(11), 1957.)

11.48.200 Meat control section—Sanitarians.

There shall be a sufficient number of sanitarians who shall assist the chief meat inspector in making sanitation inspections and surveys and routine ante-mortem and post-mortem inspections, or other duties, as assigned. (1948 C., Ch. 39, § 12; 1960 C., § 474.040; 1994 C., § 11.48.200; Ord. No. 48606, § 1(12), 1957.)

11.48.210 Meat control section—Accountants.

There may be one or more bookkeepers or accountants, as the Health Commissioner deems necessary, whose duty it shall be, under the supervision of the chief meat inspector, to maintain such account books, render such statements and bills as are necessary. (1948 C., Ch. 39, § 13; 1960 C., § 474.050; 1994 C., § 11.48.210; Ord. No. 48606, § 1(13), 1957.)

11.48.220 Meat control section—Clerks and stenographers.

Sufficient clerical and stenographic personnel shall be provided to assist the chief meat inspector in the keeping of records and the transaction of all office business of the meat control section. (1948 C., Ch. 39, § 14; 1960 C., § 474.060; 1994 C., § 11.48.220; Ord. No. 48606, § 1(14), 1957.)

11.48.230 Inspection brand.

It shall be unlawful for any person, firm, or corporation to prepare or sell any edible meat which does not bear the meat inspection brand or other mark of identification of the meat control section of the St. Louis Division of Health, the meat inspection branch, United States Department of Agriculture, or an inspection agency holding a reciprocity permit issued by the Board of Public Service. Such brand or other mark of identification shall indicate that the meat has been slaughtered and prepared under the supervision of one or more of the aforementioned inspection services and that the same has been inspected and passed as edible. (1948 C., Ch. 39, § 15; 1960 C., § 474.070; 1994 C., § 11.48.230; Ord. No. 48606, § 1(15), 1957.)

11.48.240 Inspections—General sanitation.

At all establishments permitted under the provisions of this chapter there shall be a general sanitation inspection. This inspection shall determine compliance with all provisions of this chapter and with the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 25; 1960 C., § 474.190; 1994 C., § 11.48.240; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(23), 1957.)

11.48.250 Inspections—Ante-mortem.

There shall be an ante-mortem examination of all animals about to be slaughtered. Such ante-mortem examination shall be made in pens on the premises of the establishment in which the animals are about to be slaughtered before the animals shall be permitted into the slaughter area. Animals which are not passed by such ante-mortem examination shall be condemned by the health officer or retained and held under supervision of the health officer. Procedures for disposition of animals showing evidence of abnormalities shall be subject to the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 26; 1960 C., § 474.200; 1994 C., § 11.48.250; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(26), 1957.)

11.48.260 Inspections—Post-mortem.

All animals shall receive a post-mortem examination by the health officer at the time of slaughter.

Disposition of carcasses in which abnormalities are found shall be subject to the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 27; 1960 C., § 474.210; 1994 C., § 11.48.260; Ord. No. 49556, § 2(part), 1958; Ord. No. 48606, § 1(27), 1957.)

11.48.270 Inspections—Reinspection.

Reinspection of meat, meat products, meat by-products, and meat food products, may be made at any time in order to determine compliance with the requirements of this chapter and with the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 28; 1960 C., § 220; 1994 C., § 11.48.270; Ord. No. 49556, § 2(part), 1959; Ord. No. 48606, § 1(28), 1957.)

11.48.280 Inspections—Withdrawal.

The Health Commissioner may withdraw inspection from establishments operating under a Board of Public Service permit in the following instances:

A. When in the judgment of the Health Commissioner an immediate hazard to the public health exists;

B. When an establishment after having been issued a work order as provided in this chapter has failed to comply within the time limit allowed; and

C. When an establishment has failed to promptly pay fees or deposits or submit reports as required by this chapter.

During such period of withdrawal of inspection it shall be unlawful to sell, offer for sale, or deliver in the City of St. Louis, any meat or product processed or slaughtered in such plant. (1948 C., Ch. 39, § 22; 1960 C., § 474.150; 1994 C., § 11.48.280; Ord. No. 48606, § 1(22), 1957.)

11.48.290 Inspections—Personnel.

For the purposes of carrying out the inspections required by this chapter, the health officer shall determine the number and types of personnel needed to properly inspect each establishment. (1948 C., Ch. 39, § 29; 1960 C., § 474.230; 1994 C., § 11.48.290; Ord. No. 48606, § 1(29), 1957.)

11.48.300 Inspections—Facilities.

All establishments shall provide personnel and facilities for the conduct of ante-mortem examinations, post-mortem examinations, and for separating and holding apart healthy animals from all animals showing signs or symptoms of disease and separating and holding apart all carcasses, meat and product which are ordered condemned or retained, all in accordance with the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. It shall be unlawful to fail to separate and hold apart as directed by the health officer animals, carcasses, meat, and product which are ordered to be retained or condemned. (1948 C., Ch. 39, § 30; 1960 C., § 474.240; 1994 C., § 11.48.300; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(30), 1957.)

11.48.310 Inspections—Inspector's accommodations.

All establishments furnished inspection services by the meat control section shall provide rent free for the use of the health officer suitable office space, locker facilities, and washing facilities, as described by the rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 31; 1960 C., § 474.250; 1994 C., § 11.48.310; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(31), 1957.)

11.48.320 Inspections—Vehicles and containers.

All vehicles and containers used in transporting edible meat and product shall be inspected by the health officer to determine compliance with the requirements of the rules and regulations made and adopted hereunder. (1948 C., Ch. 39, § 32; 1960 C., § 474.260; 1994 C., § 11.48.320; Ord. No. 48606, § 1(32), 1957.)

11.48.330 Official numbers.

All official establishments shall be assigned official numbers which shall be used on any brands, marking devices, trade labels, or bulk labels as an identification of the establishment. It shall be unlawful for any person, firm or corporation to use as an identification number any number except one which has been assigned to the establishment by the health officer or an approved inspection agency. (1948 C., Ch. 39, § 33; 1960 C., § 474.270; 1994 C., § 11.48.330; Ord. No. 48606, § 1(33), 1957.)

11.48.340 Labels.

All trade labels which include wording, other than the inspection legend, shall be approved as to design, color and context by the health officer before use.

Bulk labels for shipping containers shall meet the requirements of the rules and regulations made and adopted by the Health Commissioner with the ap-

proval of the Director of Health and Hospitals. (1948 C., Ch. 39, § 34; 1960 C., § 474.280; 1994 C., § 11.48.340; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(34), 1957.)

11.48.350 Brands.

Official ink or burning brands of a type approved by the Health Commissioner shall be supplied by all establishments. All official brands shall be registered with the meat control section, this registry to contain such information as number, size and type of all official brands in the official establishments. In the event of suspected misuse of official brands the health officer is empowered to maintain the official brands of an establishment in his custody and to permit their use only under his direct supervision, and within any eight-hour period between the hours of six a.m. and six p.m. Monday through Friday. All official stamps or brands shall be surrendered or defaced under supervision of the health officer when their use is no longer authorized. (1948 C., Ch. 39, § 34; 1960 C., § 474.290; 1994 C., § 11.48.350; Ord. No. 48606, § 1(35), 1957.)

11.48.360 Work orders.

The health officer may order any establishment in which edible meat is prepared, stored, or sold to effect cleaning, repair or construction operations that are necessary to place such establishment in conformity with the requirements of this chapter, which orders shall not be arbitrary or unreasonable. If the order involves a cleaning, repair or construction operation which requires expenditures of considerable time or money, said order shall be delivered personally or by registered mail to the establishment and shall specify a reasonable period within which compliance shall be had. While cleaning, repairing, or construction operations are being undertaken pursuant to said order, the areas of the establishment affected by such order shall not be used for the preparation or sale of edible meat without the permission of the health officer. It shall be unlawful for any person to refuse or neglect to comply with any order lawfully issued pursuant to this section. (1948 C., Ch. 39, § 36; 1960 C., § 474.300; 1994 C., § 11.48.360; Ord. No. 48606, § 1(36), 1957.)

11.48.370 Right of entry.

The right of entry into any establishment in which edible meat is prepared, stored, or sold is hereby granted, to authorized agents of the Health Commissioner, for the purpose of conducting inspections or investigations. (1948 C., Ch. 39, § 37; 1960 C., § 474.310; 1994 C., § 11.48.370; Ord. No. 48606, § 1(37), 1957.)

11.48.380 Interference with inspection or sampling.

It shall be unlawful for any person to hinder, interfere with, prevent, or refuse to permit any duly authorized inspection or investigation or to conceal any animal, meat, or product so as to prevent inspection or sampling or to run or drive away to prevent inspection or sampling. (1948 C., Ch. 39, § 38; 1960 C., § 474.320; 1994 C., § 11.48.380; Ord. No. 48606, § 1(38), 1957.)

11.48.390 Sampling.

Samples sufficient for analysis of edible meat or product, or water, dyes, chemical preservatives, spices, or other articles used in connection with the preparation or sale of edible meat may be taken by the health officer without cost as often as may be deemed necessary by the health officer. (1948 C., Ch. 39, § 39; 1960 C., § 474.330; 1994 C., § 11.48.390; Ord. No. 48606, § 1(39), 1957.)

11.48.400 Condemnation, retention and holding.

When in the course of any inspection, survey, or investigation, the health officer finds meat or product that is unsound, unhealthful, unwholesome, diseased, contaminated, adulterated, uninspected or otherwise unfit, or inedible under provisions of this chapter or rules and regulations made and adopted by the Health Commissioner with the approval of the Director of Health and Hospitals, he may issue an order of condemnation or an order for retention or holding pending further investigation and examination. It shall be unlawful to dispose of any animal, carcass, or meat which has been ordered by the health officer to be retained and held until such article has been further inspected or examined and either approved or ordered condemned. (1948 C., Ch. 39, § 40; 1960 C., § 474.340; 1994 C., § 11.48.400; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(40), 1957.)

11.48.410 Counterfeiting.

It shall be unlawful for any person, firm or corporation to destroy, alter, counterfeit, imitate or colorably imitate or cause to be destroyed or altered, counterfeited, imitated or colorably imitated the meat inspection brand or other mark of identification of the St. Louis meat control section or of the United States Department of Agriculture, or of any inspection ser-

vice approved by the St. Louis Health Commissioner, except that labels, brands, or other marking devices which are no longer authorized, must be surrendered to the health officer or destroyed under his supervision.

It shall be unlawful for any person, firm, or corporation to possess, use, or cause to be used any meat inspection brand or other mark of identification of one or more of the aforementioned official inspection services unless such possession or use is authorized and permitted by the appropriate official inspection agency. (1948 C., Ch. 39, § 41; 1960 C., §§ 474.350, 474.360; 1994 C., § 11.48.410; Ord. No. 48606, § 1(41), 1957.)

11.48.420 Rules and regulations.

In order to prevent the use and consumption of unsound, unhealthful, unwholesome, diseased, contaminated, adulterated, or otherwise unfit or inedible meat, the Health Commissioner of the City of St. Louis, with the approval of the Director of Health and Hospitals, is hereby empowered to make and adopt rules and regulations consistent with the requirements of this chapter.

Such rules and regulations may provide procedures for the inspection of such establishments by the health officer.

Such rules and regulations may establish standards, specifications and interpretations designed to protect the health and safety of those who prepare, sell or consume meat and may provide for the condemnation of unsound, unhealthful, diseased, contaminated, uninspected, adulterated, misbranded or otherwise unfit or inedible carcasses and product.

If, in the judgment of the health officer, the interpretations of certain portions of this chapter, in accordance with published editions of the "Manual of Inspection Procedures" and the "Regulations Governing Meat Inspection" of the United States Department of Agriculture are reasonable interpretations, the health officer may make and adopt, as provided herein, portions of such published editions as regulations insofar as they are applicable to municipal meat inspection. (1948 C., Ch. 39, § 43; 1960 C., § 475.190; 1994 C., § 11.48.420; Ord. No. 49566, § 2(part), 1959; Ord. No. 48606, § 1(43), 1957.)

11.48.430 Hours of operation.

Normal hours of operation of slaughtering and processing establishments shall be any eight-hour period between the hours of six a.m. and six p.m., Monday through Friday; except that when one inspector is assigned to conduct the work at two or more establishments where only a few animals are slaughtered by reason of which the plants operate at irregular intervals, it shall be the duty of such establishments to regulate the hours during which they operate so that the inspector may be at the plant when his presence is necessary, in the opinion of the chief meat inspector. (1948 C., Ch. 39, § 44(part); 1960 C., § 474.370; 1994 C., § 11.48.430; Ord. No. 48606, § 1(44 part), 1957.)

11.48.440 Inspector's work time.

The inspector's work time shall begin at the beginning of the ante-mortem and plant sanitation inspections for which one-half hour shall be allowed before the scheduled beginning of the kill and the inspector's work time shall end as the last carcass goes into the cooler. At the end of each day's operation, the management of the plant shall inform the inspector of the hour and date when operation will be resumed. If the management fails to give the inspector this information the inspector will appear for duty at the normal starting time of the plant on the next regular operating day and the time worked by the inspector on that day will be calculated from such nominal starting time. Any inspectional services provided in any one plant in excess of eight hours in any one weekday shall be regarded as ordinary overtime and need not have been previously requested. All inspection services performed on Saturdays, Sundays or any holiday, established by City ordinance, will be considered as extraordinary overtime and must be requested in advance in writing by the management of the establishment. All overtime shall be paid for by the plants at the rates established by the current compensation plan of the City for the particular classification of employee involved, plus an amount sufficient to reimburse the City for bookkeeping cost as established by the Health Commissioner with the approval of the Board of Estimate and Apportionment. The minimum time charged for extraordinary overtime service on any one day shall be four hours. Each plant will be billed each month by the health officer for overtime inspections performed during the prior month from the record of inspector hours performed in the plant. (1948 C., Ch. 39, § 44(part); 1960 C., § 474.380; 1994 C., § 11.48.440; Ord. No. 48606, § 1(44 part), 1957.)

11.48.450 Inspection fees—Slaughtering plants outside City.

Slaughtering plants operating under the provisions of Section 11.48.060.A shall pay for inspections at the

rate of not more than five dollars per inspector hour as established by the Health Commissioner with the approval of the Board of Estimate and Apportionment for regularly scheduled work in any eight-hour period between six a.m. and six p.m. Monday through Friday. Regular overtime and extraordinary overtime shall be as defined in Section 11.48.440 and shall be paid for at the rate of one and one-half times the regular rate as established by the Health Commissioner. In addition a charge shall be made for the travel cost of all necessary inspection personnel from the City limits to the plant as set forth in Section 11.48.500. The minimum time charged for services in any one day shall be four hours. Each slaughtering plant will be billed each month by the health officer for all inspection services performed during the prior month, as determined from the record of inspector hours performed in the plant and the travel charge. (1948 C., Ch. 39, § 45; 1960 C., § 474.390; 1994 C., § 11.48.450; Ord. No. 48606, § 1(45), 1957.)

11.48.460 Inspection fees—Processing plants outside City.

Processing plants operating under the provisions of Section 11.48.060.A shall be charged an annual fee for inspections of three hundred dollars per calendar year.

This inspection fee shall be payable in advance on January 20 of each calendar year and at the time a permit is first granted, the fee shall be paid for the balance of the current calendar year at the rate of twenty-five dollars per month. (1948 C., Ch. 39, § 46; 1960 C., § 474.400; 1994 C., § 11.48.460; Ord. No. 48606, § 1(46), 1957.)

11.48.470 Inspection fees—Storage facilities outside City.

Storage facilities operating under the provisions of Section 11.48.060.A shall be charged an annual fee for inspections of one hundred dollars per calendar year. This inspection fee shall be payable in advance on January 20 of each calendar year and at the time the permit is first granted, the fee shall be paid for the balance of the current calendar year at the rate of ten dollars per month. (1948 C., Ch. 39, § 47; 1960 C., § 474.410; 1994 C., § 11.48.470; Ord. No. 48606, § 1(47), 1957.)

11.48.480 Inspection fees—Deposits.

An inspection deposit shall be made by any plants applying for a reciprocity permit as provided in Section 11.48.050 and by plants applying for a permit under the provisions of Section 11.48.060.A to defray the salary and expenses of the health officer making the necessary inspections and surveys. Expenses may include the costs of transportation, lodging, meals, any other necessary expenses incurred by the health officer or the City.

An applicant for such a permit shall make such deposit with the Comptroller of the City of St. Louis in an amount determined by the health officer but not to exceed two hundred fifty dollars before any required inspections and surveys are made by the health officer. The Comptroller shall draw upon such deposit for the salary and expenses occasioned by any required inspections and surveys. If the permit is denied any balance remaining in such deposit shall be returned to the applicant. If a reciprocity permit is granted, the permit holder shall deposit with the Comptroller additional amounts of money, when billed by the health officer, to maintain the amount of deposit, as determined by the health officer as set forth herein, so long as a permit is retained by such establishment, to provide for the cost of periodic reinspections and surveys. Any balance remaining of such deposit shall be returned to the applicant when the reciprocity permit is revoked or expires. Any balance remaining of such deposit shall be returned to the applicant when a permit under the provisions of Section 11.48.060.A is granted or denied. (1948 C., Ch. 39, § 48; 1960 C., § 474.420; 1994 C., § 11.48.480; Ord. No. 48606, § 1(48), 1957.)

11.48.490 Disposition of fees and overtime charges.

All fees and overtime charges collected under the provisions of this chapter shall be deposited with the treasurer of the City of St. Louis and credited to the general revenue account. (1948 C., Ch. 39, § 49; 1960 C., § 474.430; 1994 C., § 11.48.490; Ord. No. 48606, § 1(49), 1957.)

11.48.500 Mileage charges.

When travel by automobile beyond the City limits of St. Louis is occasioned to carry out inspections and surveys of slaughtering plants or of plants applying for a reciprocity permit, a mileage charge shall be made at a rate per mile established by the Health Commissioner, with the approval of the Board of Estimate and Apportionment, for the mileage from the City limits by the most direct route to the plant and return. If such travel is by the private automobile of a City employee, he shall be reimbursed at this same rate for all mileage traveled

beyond the City limits, in addition to any auto allowance he receives for travel within the City. (1948 C., Ch. 39, § 50; 1960 C., § 474.440; 1994 C., § 11.48.500; Ord. No. 48606, § 1(50), 1957.)

11.48.510 General sanitation.

All establishments in which edible meat is prepared or sold shall be maintained in a clean and sanitary condition, shall be provided with suitable distribution of space, location of equipment and facilities, and arrangement of all areas in which operations are to be conducted in order to facilitate cleanliness and prevent contamination of product; shall be constructed, designed and equipped in a manner approved by the health officer and shall comply with the following requirements in Sections 11.48.510—11.48.690 and all rules and regulations made and adopted under authority of this chapter. (1948 C., Ch. 39, § 42(part); 1960 C., § 475.010; 1994 C., § 11.48.510; Ord. No. 48606, § 1(42 part), 1957.)

11.48.520 Floors.

The floors of all areas in which edible meat or product is prepared or sold or in which utensils, equipment or containers are washed shall be constructed of an impervious and easily cleaned material and shall be smooth, properly drained, and kept clean and in good repair. (1948 C., Ch. 39, § 42(a); 1960 C., § 475.020; 1994 C., § 11.48.520; Ord. No. 48606, § 1(42, a), 1957.)

11.48.530 Walls and ceilings.

Walls and ceilings of areas in which edible meat or product is prepared or sold or in which utensils, equipment or containers are washed shall have smooth, washable, impervious light colored surfaces and shall be kept clean and in good repair. (1948 C., Ch. 39, § 42(b); 1960 C., § 475.030; 1994 C., § 11.48.530; Ord. No. 48606, § 1(42, b), 1957.)

11.48.540 Insects and vermin.

There shall be adequate protection against flies, rodents and other insects and vermin. (1948 C., Ch. 39, § 42(c); 1960 C., § 475.040; 1994 C., § 11.48.540; Ord. No. 48606, § 1(42, c), 1957.)

11.48.550 Lighting and ventilation.

All areas shall be well-lighted and well-ventilated. (1948 C., Ch. 39, § 42(d); 1960 C., § 475.050; 1994 C., § 11.48.550; Ord. No. 48606, § 1(42, d), 1957.)

11.48.560 Water supply.

The water supply shall be easily accessible, adequate in quantity, and pressure and of a safe sanitary quality. Hot water, under ample pressure and in ample quantity, of an approved temperature, in convenient locations throughout such establishment, shall be provided. (1948 C., Ch. 39, § 42(e); 1960 C., § 475.060; 1994 C., § 11.48.560; Ord. No. 48606, § 1(42, e), 1957.)

11.48.570 Handwashing facilities.

In all areas where meat is prepared and sold there shall be provided adequate and convenient handwashing facilities including warm running water, soap, and sanitary towels. (1948 C., Ch. 39, § 42(f); 1960 C., § 475.070; 1994 C., § 11.48.570; Ord. No. 48606, § 1(42, f), 1957.)

11.48.580 Separation of operation.

All areas used in connection with edible meat or product shall be separate and distinct from those areas used in connection with products not suitable or intended for consumption by humans. (1948 C., Ch. 39, § 42(g); 1960 C., § 475.080; 1994 C., § 11.48.580; Ord. No. 48606, § 1(42, g), 1957.)

11.48.590 Pens.

All animals intended to be slaughtered shall be provided with sufficient food and water and adequate ventilation and shall be kept in pens which are paved and drained in an approved manner and maintained in a clean condition. Adequate flushing facilities shall be provided. (1948 C., Ch. 39, § 42(h); 1960 C., § 475.090; 1994 C., § 11.48.590; Ord. No. 48606, § 1(42, h), 1957.)

11.48.600 Cleaning utensils and equipment.

Utensils and equipment used in the preparation, storage, handling or sale of edible meat, or product shall be thoroughly cleaned in approved utensil washing facilities. All utensils and equipment used in connection with the operation of any establishment shall be kept clean and free from dust, dirt, insects and other contaminating materials. (1948 C., Ch. 39, § 42(i); 1960 C., § 475.100; 1994 C., § 11.48.600; Ord. No. 48606, § 1(42, i), 1957.)

11.48.610 Poisonous utensils and equipment.

Utensils and equipment containing or plated with cadmium, lead, or other poisonous substances shall not be used, except lead solder may be used for joining. (1948 C., Ch. 39, § 42(j); 1960 C., § 475.110; 1994 C., § 11.48.610; Ord. No. 48606, § 1(42, j), 1957.)

11.48.620 Premises.

Premises of all such establishments shall be kept clean and free of all refuse. Processing, display or sale of meat or product or washing of utensils concerned with such operations in living or sleeping quarters is prohibited. (1948 C., Ch. 39, § 42(k); 1960 C., § 475.120; 1994 C., § 11.48.620; Ord. No. 48606, § 1(42, k), 1957.)

11.48.630 Disposal of liquid and solid wastes.

All refuse shall be kept in approved receptacles and all wastes and refuse shall be disposed of in an approved manner. (1948 C., Ch. 39, § 42(l); 1960 C., § 475.130; 1994 C., § 11.48.630; Ord. No. 48606, § 1(42, l), 1957.)

11.48.640 Accommodations and facilities.

An adequate number of conveniently located dressing rooms, toilet rooms and hand washing accommodations shall be provided for employees in all establishments which prepare or sell edible meat or product. (1948 C., Ch. 39, § 42(m1); 1960 C., § 475.140(1); 1994 C., § 11.48.640; Ord. No. 48606, § 1(42, m1), 1957.)

11.48.650 Separate facilities for cleaning utensils and equipment.

Separate facilities for cleaning, disinfecting, and sterilizing utensils and other equipment shall be conveniently accessible to all areas where edible meat or product is prepared or sold and where animals are slaughtered. (1948 C., Ch. 39, § 42(m2); 1960 C., § 475.140(2); 1994 C., § 11.48.650; Ord. No. 48606, § 1(42, m2), 1957.)

11.48.660 Construction of equipment.

Equipment and utensils used in any establishment preparing or selling edible meat or product shall be constructed in such manner as to be readily and thoroughly cleanable and shall be kept in good repair. All equipment used in the preparation and sale of meat shall be constructed of corrosion resisting metals with the exception of actual cutting or chopping surfaces which may be constructed of material approved by the health officer; provided, however, that black iron may be used in lard manufacture. All equipment shall have smooth seams and joints and, insofar as possible, all edges and corners shall be rounded. (1948 C., Ch. 39, § 42(n); 1960 C., § 475.150; 1994 C., § 11.48.660; Ord. No. 48606, § 1(42, n), 1957.)

11.48.670 Employee cleanliness and health.

All employees in establishments which prepare or sell edible meat or product shall keep clean and shall wear clean garments of washable material. Special types of clothing, and head covering may be required in such instances as are deemed essential by the health officer.

It shall be unlawful for any person in any such establishment to engage in any practice which is insanitary or which tends to be detrimental to the cleanliness and sanitation of the establishment or the edible meat prepared or sold therein.

No establishment shall employ any person affected with a disease in a communicable form or any person with open lesions or sores. (1948 C., Ch. 39, § 42(o); 1960 C., § 475.160; 1994 C., § 11.48.670; Ord. No. 48606, § 1(42, o), 1957.)

11.48.680 Handling and storage of edible meat.

During preparation, handling, storage of edible meat, establishments shall use all means necessary to prevent product from coming in contact with any animal, vegetable, or chemical contaminant which might add injurious or unhealthful substances to such product. Edible meat shall be segregated effectively from inedible meat in all phases of preparation or sale. Adequate refrigeration facilities shall be provided for the storage of edible meat in all such establishments. (1948 C., Ch. 39, § 42(p1); 1960 C., § 475.170; 1994 C., § 11.48.680; Ord. No. 48606, § 1(42, p1), 1957.)

11.48.690 Denaturing and labeling inedible meat.

All inedible meat shall be denatured or decharacterized in a manner approved by the health officer. Inedible meat shall be denatured or decharacterized before shipment from the establishment of slaughter or before importation into the City of St. Louis. Containers, receptacles and covering of inedible meat shall be marked and labeled in a manner approved by the health officer; provided, however, that inedible meat intended and clearly labeled and marked for animal food which is packed in hermetically sealed cans and processed at temperatures or pressures approved by the health officer need not be further denatured or decharacterized. (1948 C., Ch. 39, § 42(p2); 1960 C., § 475.180; 1994 C., § 11.48.690; Ord. No. 48606, § 1(42, p2), 1957.)

11.48.700 Penalty for violation.

Any person who shall violate or fail to comply with any provision of this chapter shall be deemed guilty of a misdemeanor and shall upon conviction, unless otherwise provided by this chapter, be punished by a fine of not less than one dollar nor more than five hundred dollars. Each day any violation of any provision of this

chapter shall continue shall constitute a separate offense. (1948 C., Ch. 39, § 52; 1994 C., § 11.48.700; Ord. No. 48606, § 1(52), 1957.)

Chapter 11.50

FISH AND FISH PRODUCTS

City Counselor Ops.: 8769

Sections:

11.50.010 Definitions.
11.50.020 License—Retail fish markets.
11.50.030 License—Permit prerequisite.
11.50.040 Permit—Required.
11.50.050 Permit—Application.
11.50.060 Permit—Certification of health officer.
11.50.070 Permit—Revocation.
11.50.080 Permit—Rules of board.
11.50.090 Display and refrigeration.
11.50.100 Labels.
11.50.110 Prepackaged fish and product.
11.50.120 Retail fish markets to be kept clean.
11.50.130 Temporary or mobile vendors or hawkers.
11.50.140 Adulteration or misbranding.
11.50.150 Inspection—Required.
11.50.160 Inspection—Withdrawal.
11.50.170 Inspection—Right of entry.
11.50.180 Inspection—Interference.
11.50.190 Work orders.
11.50.200 Sampling.
11.50.210 Condemnation.
11.50.220 Rules and regulations.
11.50.230 General sanitation.
11.50.240 Floors.
11.50.250 Walls and ceilings.
11.50.260 Doors and windows.
11.50.270 Lighting.
11.50.280 Ventilation.
11.50.290 Employee toilet and dressing rooms.
11.50.300 Water supply.
11.50.310 Employee lavatory facilities.
11.50.320 Utensils and equipment—Construction.
11.50.330 Utensils and equipment—Cleaning.
11.50.340 Drying cloths.
11.50.350 Storage and handling utensils.
11.50.360 Waste disposal.
11.50.370 Refrigeration.
11.50.380 Wholesomeness of fish and product.
11.50.390 Protection from contamination.
11.50.400 Employee cleanliness.
11.50.410 Miscellaneous.
11.50.420 Disease control.
11.50.430 Penalty for violation.

11.50.010 Definitions.

For the purposes of this chapter the following words shall have the meaning ascribed to them in this section:

A. "Adulteration" means the addition of any substance which impairs the wholesomeness of the product or which contains any dye, coloring, preservative, or other added chemical whereby damage or inferiority is concealed, or whereby it is made to appear of better or greater quality or value than it is or which is poisonous or injurious to health or which contains any substance mixed therewith so as to lower, mask or injuriously effect the strength, quality or purity of such fish, fish product, or fish food product.

B. "Approved" as used in regard to utensils, materials, technique and processes, means satisfactory to the health officer and meeting the requirements of this chapter and the standards and specifications set forth in rules and regulations, made and adopted hereunder, established to prevent the use and consumption of unsound, unhealthful, unwholesome, diseased, contaminated, adulterated, or otherwise unfit or inedible fish.

C. "Board of public service" means the Board of Public Service of the City of St. Louis, Missouri.

D. "Condemned" shall mean that the fish, fish product or fish food product so designated has been inspected and found to be unfit for human food because it is adulterated, misbranded or otherwise unwholesome.

E. "Distributor" means a person, firm or corporation, operating independently as a wholesaler to purvey products to retail outlets, who may or may not operate his own storage facilities or trucks.

F. "Establishment" means any processing, any curing, smoking, packing, storage, or other similar establishment, vehicle or temporary facility, at which fish,

fish products, or fish food products are prepared or sold for human consumption and which must be inspected under the requirements of this chapter.

G. "Fish" means and includes raw fresh or frozen fish, oysters, clams, mussels, conchs, abalone, scallops, squid, octopi, eels, lobsters, shrimp, crayfish, turtles, frogs, snails, slugs or other similar aquatic animals, usually merchandised as and eaten as fish, whether whole or eviscerated, and which are sold, or intended for human consumption.

H. "Fish food products" means any article of food or any article intended for or capable of being used as human food which is derived or prepared wholly or in substantial or definite part from any edible portion of fish.

I. "Fish processing establishment" means any establishment in which fish is scaled, eviscerated, reduced in size by cutting, sawing, or grinding or is manufactured into fish food products.

J. "Fish products" means those products coming under the definition of fish, above, which are offered for sale with no change in character other than that they may be subdivided further than the commonly accepted whole fish. These subdivisions may include filleting, cutting into steaks or other similar processing.

K. "Fish storage establishment" means wholesale storage facility for product where refrigerated storage is the only operation and there is no subdivision of the fish carcass and no change in character of the fish by any process other than chilling or freezing.

L. "Hawker" means any person who sells or offers for sale in any wagon, vehicle, or other conveyance, drawn by hand or otherwise in streets by outcry or by going from place to place in the City, any fish, fish products, or fish food products.

M. "Health Officer" means the Health Commissioner of the City or his duly appointed agents or representatives.

N. "Itinerant vendor" shall mean any person who engages in a temporary or transient business in the City, selling fish, fish products or fish food products and who for the purpose of carrying on such business, hires, leases, or occupies any room, building or structure for the exhibition or sale of such fish, fish products or fish food products.

O. "Misbranded" means all fish, fish products or fish food products, the label of which bears any statement, design or device regarding such article or the ingredients or substitutes contained therein, which shall be false or misleading or which fails to bear any words or statements required to be included in the label by City ordinance or regulations or state statute or regulations.

P. "Person" means natural person, individual, firm, partnership, corporation, company, society or association. This term shall import either the singular or the plural whichever is applicable.

Q. "Product" means any part or all of fish, fish products, or fish food products as produced by an establishment, as defined in Subsection F.

R. "Retail fish market" means an establishment where fish, fish products or fish food products are displayed for sale, without further preparation, to the ultimate consumer in retail trade, on the same premises, and where no wholesale operations are carried on by such establishment from the same premises. (1960 C., § 480.010; 1994 C., § 11.50.010; Ord. No. 50140, § 1, 1961.)

11.50.020 License—Retail fish markets.

Any keeper of a retail fish market who shall fail to obtain any merchant's license or shall fail to keep such license posted in his shop shall be deemed guilty of a misdemeanor. (1960 C., § 480.020; 1994 C., § 11.50.020; Ord. No. 50140, § 2, 1961.)

11.50.030 License—Permit prerequisite.

The License Collector shall issue no license to a fish processing, wholesale storing or distribution establishment or itinerant vendor or hawker of fish or product at retail unless the application therefor is accompanied by a certificate from the Board of Public Service reciting that the applicant is the holder of a permit to operate such business; provided that no permit shall be required for retail establishments as defined in Section 11.50.010R. When the health officer finds that an establishment is operating in violation of this chapter he shall notify, in writing, the License Collector that such is the case and recommend that the existing license be cancelled. (1960 C., § 480.130; 1994 C., § 11.50.030; Ord. No. 50140, § 13, 1961.)

11.50.040 Permit—Required.

After March 4, 1961, it shall be unlawful for any person to engage in the business of dressing fish for human food, making or preparing fish products, manufacturing or processing fish food products to be used as or in the preparation of human food or maintaining a wholesale fish storage or distribution facility for any

fish or product or operate any itinerant vending or hawking facility for fish or fish products at retail within the City without first having applied for and obtained from the Board of Public Service a permit to engage in such business, provided that restaurants operating under Board of Public Service permits may process fish or product for service in the same establishment. Permits shall not be transferable with respect to persons or locations. (1960 C., § 480.080; 1994 C., § 11.50.040; Ord. No. 50140, § 8, 1961.)

11.50.050 Permit—Application.

Every application for any permit provided for by this chapter shall be in the form approved by the Board of Public Service and shall state the name and address of the applicant, the precise nature of the business to be carried on, the extent of his interest in the business for which the permit is desired, and, if the applicant is not the owner of such business, then the application shall state the name and address of the owner. Such application shall further state the location of the business for which the permit is desired and shall be submitted together with such plans and specifications and other information as may be required by the Board of Public Service or the health officer. (1960 C., § 480.090; 1994 C., § 11.50.050; Ord. No. 50140, § 9, 1961.)

11.50.060 Permit—Certification of health officer.

The Board of Public Service shall not issue a permit to engage in any business covered by this chapter until the health officer has certified to the Board of Public Service that the applicant has complied with the provisions of this chapter and with all laws, ordinances and regulations applicable to such business. (1960 C., § 480.100; 1994 C., § 11.50.060; Ord. No. 50140, § 10, 1961.)

11.50.070 Permit—Revocation.

The Board of Public Service shall have power, upon reasonable notice and a hearing thereon, to revoke any permit issued pursuant to this chapter if the establishment operating under such permit does not comply with its provisions and with all ordinances and lawful regulations of the Health Commissioner applicable to such establishments or if the holder of the permit shall have been repeatedly convicted of violating the ordinances of the City or the laws of the State of Missouri relating to the business in which he or it is engaged or if any false or misleading statement, upon a material matter, shall be made by the applicant in connection with the issuance of such permit. (1960 C., § 480.110; 1994 C., § 11.50.070; Ord. No. 50140, § 11, 1961.)

11.50.080 Permit—Rules of board.

The Board of Public Service is authorized to adopt such rules and regulations governing its procedures relating to issuance and revocation of permits not inconsistent with the provisions of this chapter. (1960 C., § 480.120; 1994 C., § 11.50.080; Ord. No. 50140, § 12, 1961.)

11.50.090 Display and refrigeration.

No person shall cause the sidewalk display of fish, fish product or fish food product at any place within the City or cause any unwrapped or uncovered fish, fish product, or fish food product to be displayed on, above, or over any sidewalk, street, alley, or other public place within the City, nor display fish or product in such manner that said fish or product may be subjected to handling or contamination by customers or to contamination by any other animal, vegetable or chemical source whereby substances injurious to health might be added to the food. No fish, fish product, or fish food product, unless enclosed in a sealed container and sterilized completely shall be stored or displayed at a temperature of above fifty degrees Fahrenheit. (1960 C., § 480.030; 1994 C., § 11.50.090; Ord. No. 50140, § 3, 1961.)

11.50.100 Labels.

All trade labels shall be approved as to design, color, and contents by the health officer before use.

All sealed packages of fish or product shall bear a label stating the true name of the fish or product and fish food product labels shall bear a list of ingredients in order of prominence in the product and shall not be misbranded. (1960 C., § 480.140; 1994 C., § 11.50.100; Ord. No. 50140, § 14, 1961.)

11.50.110 Prepackaged fish and product.

Prepackaged fish, fish products and fish food products may be sold in open self service refrigerated cabinets in retail fish markets if each such cabinet is at all times maintained, for unfrozen product, at a temperature of not higher than thirty-six degrees Fahrenheit at the cooling surface or not higher than fifty degrees Fahrenheit at the rim of the cabinet and for frozen product at not more than ten degrees Fahrenheit, and if each portion of fish or product so sold is thoroughly prepackaged by wrapping and completely sealed so as

to prevent contamination of the fish or product. Frozen prepackaged product shall not be thawed and refrozen. All such packages shall be legally labeled so as to comply with the ordinances of the City and such regulations as have been made and adopted to cover such operations. (1960 C., § 480.040; 1994 C., § 11.50.110; Ord. No. 50140, § 4, 1961.)

11.50.120 Retail fish markets to be kept clean.

Every person who is duly licensed to keep a retail fish market shall keep it properly cleaned and free from all foul smells and nuisances of every description and shall comply with the requirements of general sanitation set forth in Sections 11.50.230—11.50.420. (1960 C., § 480.050; 1994 C., § 11.50.120; Ord. No. 50140, § 5, 1961.)

11.50.130 Temporary or mobile vendors or hawkers.

Temporary or mobile vendors or hawkers and itinerant vendors as defined in Section 11.50.010.L and N, may sell either whole or preprocessed fish or fish products at retail but may do no cutting, scaling, eviscerating or other processing in the temporary or mobile facility.

Such establishments must obtain Board of Public Service permits as provided in Section 11.50.040 and shall obtain and display such licenses as are required by the City of St. Louis and the State of Missouri. The same limitations of operation and the sanitation requirements shall apply to these operation and the sanitation requirements shall apply to these establishments as are required for other retail fish markets. Approved type covered containers for all wastes and refuse shall be provided and properly used and the discharge of any wastes onto streets or alleys or into catch basins or storm sewers is prohibited. (1960 C., § 480.060; 1994 C., § 11.50.130; Ord. No. 50140, § 6, 1961.)

11.50.140 Adulteration or misbranding.

No person shall, within the City, manufacture, produce, sell, or offer for sale any adulterated or misbranded fish, fish product, or fish food product intended for human consumption. Any person who shall violate any of the provisions of this section shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars by imprisonment in the workhouse for not more than six months or by both such fine and imprisonment. (1960 C., § 480.070; 1994 C., § 11.50.140; Ord. No. 50140, § 7, 1961.)

11.50.150 Inspection—Required.

Inspection of establishments, fish, fish products, or fish food products, may be made at any time in order to determine compliance with the requirements of this chapter and with the rules and regulations made and adopted hereunder. A copy of the inspection sheet will be posted on an inside wall of the establishment following each inspection. (1960 C., § 480.150; 1994 C., § 11.50.150; Ord. No. 50140, § 15, 1961.)

11.50.160 Inspection—Withdrawal.

The Health Commissioner may withdraw inspections from establishments, operating under a Board of Public Service permit, in the following instances:

A. When, in the judgment of the Health Commissioner, an immediate hazard to the public health exists;

B. When an establishment, after having been issued a work order as provided in this chapter, has failed to comply within the time limit allowed.

During such period of withdrawal of inspection, it shall be unlawful to sell or offer for sale or deliver, in the City of St. Louis, any fish, fish product or fish food product processed in such establishments. (1960 C., § 480.160; 1994 C., § 11.50.160; Ord. No. 50140, § 16, 1961.)

11.50.170 Inspection—Right of entry.

The right of entry into any establishment in which edible fish or product is prepared, stored, or sold is hereby granted to authorized agents of the Health Commissioner for the purpose of conducting inspections or investigations. (1960 C., § 480.170; 1994 C., § 11.50.170; Ord. No. 50140, § 17, 1961.)

11.50.180 Inspection—Interference.

It shall be unlawful for any person to hinder, interfere with, prevent, or refuse to permit any duly authorized inspection or investigation or to conceal any fish or product so as to prevent inspection or sampling or to run or drive away to prevent inspection or sampling. (1960 C., § 480.180; 1994 C., § 11.50.180; Ord. No. 50140, § 18, 1961.)

11.50.190 Work orders.

The health officer may order any establishment in which edible fish or product is prepared, stored, or sold to effect cleaning, repair or construction operations

that are necessary to place such establishment in conformity with the requirements of this chapter, which order shall not be arbitrary or unreasonable. If the order involves a cleaning, repair, or construction operation which requires expenditure of considerable time or money, order shall be delivered personally or by registered mail to the establishment and shall specify a reasonable period within which compliance shall be had. While cleaning, repairing or construction operations are being undertaken pursuant to said order, the areas of the establishment affected by such order shall not be used for the preparation or sale of edible fish or product without the permission of the health officer. It shall be unlawful for any person to refuse or neglect to comply with any order lawfully issued pursuant to this section. (1960 C., § 480.190; 1994 C., § 11.50.190; Ord. No. 50140, § 19, 1961.)

11.50.200 Sampling.

Samples sufficient for analysis of edible fish, or product, or water, dyes, chemical preservatives, spices or other articles used in connection with the preparation or sale of edible fish or product may be taken by the health officer without cost as often as may be deemed necessary by the health officer. (1960 C., § 480.195; 1994 C., § 11.50.200; Ord. No. 50140, § 20, 1961.)

11.50.210 Condemnation.

When in the course of any inspection, survey, or investigation, the health officer finds fish or product that is unsound, unhealthful, unwholesome, diseased, contaminated, adulterated or otherwise unfit or inedible under provisions of this chapter or rules or regulations made and adopted hereunder, he may issue an order of condemnation, or an order for retention or holding, pending further investigation and examination. It shall be unlawful to dispose of any fish or product, which has been ordered by the health officer to be retained and held, until such article has been further inspected or examined and either approved or ordered condemned. (1960 C., § 480.200; 1994 C., § 11.50.210; Ord. No. 50140, § 21, 1961.)

11.50.220 Rules and regulations.

In order to prevent the use and consumption of unsound, unhealthful, unwholesome, contaminated, adulterated, misbranded or otherwise unfit or inedible fish or product, the Health Commissioner, with the approval of the Director of Health and Hospitals and after submission to the Board of Public Health for its conclusions and recommendations, is hereby empowered to make and adopt rules and regulations consistent with the requirements of this chapter.

Such rules and regulations may provide procedures for the inspection, by the health officer, of establishments subject to this chapter. Such rules and regulations may establish standards, specifications and interpretations designed to protect the health and safety of those who prepare, sell or consume fish or product and may provide for the condemnation of unsound, unhealthful, diseased, contaminated, adulterated, misbranded or otherwise unfit or inedible fish or product. (1960 C., § 480.210; 1994 C., § 11.50.220; Ord. No. 50140, § 22, 1961.)

11.50.230 General sanitation.

All establishments in which edible fish or product is prepared or sold shall be maintained in a clean and sanitary condition, shall be provided with suitable distribution of space, location of equipment and facilities and arrangement of all areas in which operations are to be conducted in order to facilitate cleanliness and prevent contamination of product; shall be constructed, designed and equipped in a manner approved by the health officer and shall comply with the requirements in Sections 11.50.230—11.50.420 and all rules and regulations made and adopted under authority of this chapter. (1960 C., § 480.220(part); 1994 C., § 11.50.230; Ord. No. 50140, § 23(part), 1961.)

11.50.240 Floors.

The floors of all areas in which edible fish or product is prepared or sold or in which utensils, equipment or containers are washed shall be constructed and shall be smooth, properly drained, and kept clean and in good repair. (1960 C., § 480.220(A); 1994 C., § 11.50.240; Ord. No. 50140, § 23(A), 1961.)

11.50.250 Walls and ceilings.

Walls and ceilings, of areas in which edible fish or product is prepared or sold, or in which utensils, equipment or containers are washed, shall be clean, in good repair, light color, and smooth and washable to level of splash. (1960 C., § 480.220(B); 1994 C., § 11.50.250; Ord. No. 50140, § 23(B), 1961.)

11.50.260 Doors and windows.

All outer openings shall have effective screens and outward opening, self-closing doors, or shall be equipped with fly repellent fans or other devices to protect against

entry of flies—or flies shall otherwise be eliminated from the establishment, by acceptable means. (1960 C., § 480.220(C); 1994 C., § 11.50.260; Ord. No. 50140, § 23(C), 1961.)

11.50.270 Lighting.

Processing or storage rooms shall be well-lighted so as to provide at least ten footcandles of light on all work surfaces. (1960 C., § 480.220(D); 1994 C., § 11.50.270; Ord. No. 50140, § 23(D), 1961.)

11.50.280 Ventilation.

All rooms shall be reasonably free of odors and condensation. (1960 C., § 480.220(E); 1994 C., § 11.50.280; Ord. No. 50140, § 23(E), 1961.)

11.50.290 Employee toilet and dressing rooms.

An adequate number of conveniently located dressing rooms, toilet rooms, and handwashing accommodations shall be provided for employees in all establishments which prepare edible fish or product. Toilet facilities shall be maintained in a clean condition and good repair.

Toilet rooms and dressing rooms shall be provided with self-closing doors and shall be well ventilated. A handwashing sign urging employees to wash hands before returning to work shall be posted in all toilets. (1960 C., § 480.220(F); 1994 C., § 11.50.290; Ord. No. 50140, § 23(F), 1961.)

11.50.300 Water supply.

An adequate and safe supply of hot and cold running water shall be accessible to all processing and utensil washing areas. (1960 C., § 480.220(G); 1994 C., § 11.50.300; Ord. No. 50140, § 23(G), 1961.)

11.50.310 Employee lavatory facilities.

Adequate, convenient and clean handwashing facilities, equipped with hot and cold running water, soap, and approved sanitary towels shall be provided in all work areas of the establishment. Employees of the establishment shall wash hands thoroughly after visits to the toilet, or after any other act which may contaminate hands.

Pails, or other vessels of clean sanitizing solution shall be acceptable for handwashing in hawker vehicles. (1960 C., § 480.220(H); 1994 C., § 11.50.310; Ord. No. 50140, § 23(H), 1961.)

11.50.320 Utensils and equipment—Construction.

Equipment and utensils used in any establishment preparing or selling edible fish or product shall be constructed in such manner as to be readily and thoroughly cleanable and shall be kept in good repair. All equipment used in preparation and sale of fish or product shall be constructed of corrosion resisting materials with the exception of actual cutting or chopping surfaces which may be constructed of material approved by the health officer. All equipment shall have smooth seams and joints and, in so far as possible all edges and corners shall be rounded. (1960 C., § 480.220(I); 1994 C., § 11.50.320; Ord. No. 50140, § 23(I), 1961.)

11.50.330 Utensils and equipment—Cleaning.

Utensils and equipment used in the preparation and storage, handling or sale of edible fish or product shall be thoroughly cleaned in approved utensil washing facilities. All utensils and equipment used in connection with the operation of any establishment shall be kept clean and free from dust, dirt, insects, and other contaminating materials. (1960 C., § 480.220(J); 1994 C., § 11.50.330; Ord. No. 50140, § 23(J), 1961.)

11.50.340 Drying cloths.

Drying cloths, if used must be kept clean and used for no other purpose. (1960 C., § 480.220(K); 1994 C., § 11.50.340; Ord. No. 50140, § 23(K), 1961.)

11.50.350 Storage and handling utensils.

Utensils shall be stored in a clean, dry place protected from flies, splash, dust, etc. and handled so as to prevent contamination so far as possible. Single service containers, wrapping materials, etc. shall be purchased in sanitary wrapping or cartons and kept in a clean dry place and properly handled. (1960 C., § 480.220(L); 1994 C., § 11.50.350; Ord. No. 50140, § 23(L), 1961.)

11.50.360 Waste disposal.

Liquid and inedible offal wastes shall be disposed of in an acceptable manner. Garbage and trash shall be kept in legal containers which shall be kept covered with tight-fitting lids when not actually in the process of being filled and shall be hauled and disposed of frequently enough so as not to create a nuisance. (1960 C., § 480.220(M); 1994 C., § 11.50.360; Ord. No. 50140, § 23(M), 1961.)

11.50.370 Refrigeration.

Refrigeration equipment shall be provided which is capable of storing all unfrozen perishable product at a temperature of less than fifty degrees Fahrenheit, and all frozen perishable product at a temperature of less

than ten degrees Fahrenheit. (1960 C., § 480.220(N); 1994 C., § 11.50.370; Ord. No. 50140, § 23(N), 1961.)

11.50.380 Wholesomeness of fish and product.

All fish and product and all ingredients shall be wholesome and clean with no spoilage, shall be prepared so as to be safe for human consumption. All shellfish shall be from approved sources and all shucked shellfish shall be kept in the containers in which they were placed at the shucking plant. (1960 C., § 480.220(O); 1994 C., § 11.50.380; Ord. No. 50140, § 23(O), 1961.)

11.50.390 Protection from contamination.

All whole or processed fish or product shall be stored, handled, and displayed so as to be protected from dust, flies, roaches, rodents, unnecessary handling, droplet infection, overhead leakage, or from contact with any animal, vegetable or chemical contaminant which might add injurious or unhealthful substances to such product.

The keeping of live animals in any room where fish or product is prepared, stored or displayed is prohibited.

All means necessary for elimination of flies, roaches, or other insects shall be taken.

All establishments shall be rat stopped and shall be maintained in a rat free and mouse free condition. (1960 C., § 480.220(P); 1994 C., § 11.50.390; Ord. No. 50140, § 23(P), 1961.)

11.50.400 Employee cleanliness.

All employees shall wear clean outer garments of washable material at all times while engaged in the handling of food, utensils, or equipment and shall keep their hands clean.

Employees shall not expectorate or use tobacco in any form in rooms in which food is prepared or displayed.

It shall be unlawful for any person in any establishment handling fish or product to engage in any practice which is insanitary or which tends to be detrimental to the cleanliness and sanitation of the establishment or the edible fish product prepared or sold therein.

Special types of clothing and head covering may be required in such instances as are deemed essential by the health officer. (1960 C., § 480.220(Q); 1994 C., § 11.50.400; Ord. No. 50140, § 23(Q), 1961.)

11.50.410 Miscellaneous.

The premises of all establishments shall be kept clean and free of litter or rubbish.

None of the operations connected with an establishment shall be conducted in any room used as living or sleeping quarters.

Adequate lockers or dressing rooms shall be provided for employees clothing and shall be kept clean. No employees clothing shall be kept openly in any work area of the establishment.

Containers shall be provided and soiled linens, coats and aprons, shall be kept therein. (1960 C., § 480.220(R); 1994 C., § 11.50.410; Ord. No. 50140, § 23(R), 1961.)

11.50.420 Disease control.

No establishment shall employ any person affected with a disease in a communicable form or any person with open lesions or sores.

A copy of the St. Louis health division's official handwashing sign shall be posted in all toilets in the establishment. (1960 C., § 480.220(S); 1994 C., § 11.50.420; Ord. No. 50140, § 23(S), 1961.)

11.50.430 Penalty for violation.

Any person who shall violate or fail to comply with any provision of this chapter shall be deemed guilty of a misdemeanor and shall upon conviction, unless otherwise provided by this chapter, be punished by a fine of not less than one dollar, nor more than five hundred dollars. Each day any violation of any provision of this chapter shall continue shall constitute a separate offense. (1994 C., § 11.50.430; Ord. No. 50140, § 25, 1961.)

Chapter 11.51

FROZEN DESSERTS

Sections:

Part I. Definitions

11.51.010 Adulterated.
11.51.020 Confectionery.
11.51.030 Edible fats.
11.51.040 Frozen custard, french ice cream, french custard ice cream.
11.51.050 Frozen desserts distributor.
11.51.060 Frozen desserts plant.
11.51.070 Frozen desserts processor.
11.51.080 Health authority or health officer.

11.51.090 Ice cream.
11.51.100 Ice milk.
11.51.110 Ingredients other than milk and milk products.
11.51.120 Mellorine.
11.51.130 Milk and milk products.
11.51.140 Misbranded.
11.51.150 Mix or frozen desserts mix.
11.51.160 Official laboratory.
11.51.170 Pasteurization.
11.51.180 Person.
11.51.190 Sherbet or fruit sherbet.
11.51.200 Water ice.

Part II. Permits

11.51.210 Required—Exemptions.
11.51.220 Issuance—Fees.
11.51.230 Suspension and revocation.
11.51.240 Hearings.
11.51.250 Reinstatement.

Part III. Inspection and Examination and Standards

11.51.260 Frequency of inspection—Report.
11.51.270 Access to establishment for inspection.
11.51.280 Quality standards for ingredients.
11.51.290 Production and processing standards.
11.51.300 Method other than pasteurization.
11.51.310 Required samplings.
11.51.320 Discretionary samplings.
11.51.330 Samples taken in official laboratories.
11.51.340 Notice when samples not within standards.
11.51.350 Testing for adequate pasteurization.

Part IV. Sanitation Standards for Plants

11.51.360 Floor construction.
11.51.370 Wall and ceiling surfaces.
11.51.380 Doors and windows.
11.51.390 Lighting and ventilation.
11.51.400 Miscellaneous protection from contamination.
11.51.410 Toilet facilities.
11.51.420 Water supply.
11.51.430 Handwashing facilities.
11.51.440 Sanitary piping and fittings.
11.51.450 Construction and repair of containers, utensils and equipment.
11.51.460 Disposal of waste.
11.51.470 Cleaning and bacterial treatment of multi-use utensils, containers and equipment.
11.51.480 Storage of multi-use utensils, containers and equipment.
11.51.490 Storage of single-service containers, utensils and materials.
11.51.500 Handling of containers and equipment.
11.51.510 Pasteurization.
11.51.520 Cooling and handling.
11.51.530 Packaging.
11.51.540 Returns.
11.51.550 Overflow and spillage.
11.51.560 Personal health.
11.51.570 Personnel cleanliness.
11.51.580 Vehicles.
11.51.590 Surroundings.

Part V. Miscellaneous Regulations

11.51.600 Sale of adulterated, misbranded mix or frozen desserts prohibited.
11.51.610 Labeling.
11.51.620 Frozen desserts which may be sold.
11.51.630 Transferring and dispensing frozen desserts.
11.51.640 Frozen desserts from points beyond the limits of routine inspection.
11.51.650 Future frozen desserts plants.
11.51.660 Notification of disease.
11.51.670 Procedure when infection suspected.

PART I. DEFINITIONS

11.51.010 Adulterated.

"Adulterated" means the condition of the frozen dessert:

A. If it bears or contains any poisonous or deleterious substance in a quantity which may render it injurious to health;

B. If it bears or contains any added poisonous or deleterious substance for which no safe tolerance has been established by regulation, or in excess of such tolerance if one has been established;

C. If it consists in whole or in part of any substance unfit for human consumption;

D. If it has been processed, prepared, packaged, or held under unsanitary conditions whereby it may have been rendered injurious to health;

E. If its container is composed in whole or in part of any toxic or deleterious substance which may render the contents injurious to health; and

F. If it contains any substance that does not conform to the definitions contained in this chapter. (1994 C., § 11.51.010; Ord. No. 57505, § 1(part), 1978.)

11.51.020 Confectionery.

"Confectionery" means candy, cakes, cookies, and glazed fruits. (1994 C., § 11.51.020; Ord. No. 57505, § 1(part), 1978.)

11.51.030 Edible fats.

"Edible fats" means the edible natural fats other than milk fat derived from vegetable or animal sources. (1994 C., § 11.51.030; Ord. No. 57505, § 1(part), 1978.)

11.51.040 Frozen custard, french ice cream, french custard ice cream.

"French ice cream" and "french frozen custard" is ice cream to which has been added prior to pasteurization egg ingredients in such quantity that the total weight of egg solids therein is not less than 1.4 percent of the weight of the finished product; provided, however, that when fruits, nuts, cocoa or chocolate, malted milk and confectionery are used, the content of the egg yolk solids may be reduced in proportion to those flavorings added; but in no case shall the content of egg yolk solids be less than 1.12 percent. (1994 C., § 11.51.040; Ord. No. 57505, § 1(part), 1978.)

11.51.050 Frozen desserts distributor.

A "frozen desserts distributor" is any person who offers for sale or sells to another any frozen desserts or mix for human consumption. (1994 C., § 11.51.050; Ord. No. 57505, § 1(part), 1978.)

11.51.060 Frozen desserts plant.

A "frozen desserts plant" is any place or premises where frozen desserts or mix are processed, pasteurized, frozen or packaged for distribution or sale. (1994 C., § 11.51.060; Ord. No. 57505, § 1(part), 1978.)

11.51.070 Frozen desserts processor.

A "frozen desserts processor" is any person who freezes any pasteurized mix into semisolid or solid form, for retail distribution or sale as a frozen dessert. (1994 C., § 11.51.070; Ord. No. 57505, § 1(part), 1978.)

11.51.080 Health authority or health officer.

The "Health Authority" or "health officer" means the Health Commissioner of the City or his authorized representative. (1994 C., § 11.51.080; Ord. No. 57505, § 1(part), 1978.)

11.51.090 Ice cream.

"Ice cream" is a frozen dessert prepared by freezing, while stirring, a pasteurized mix composed of two or more of the following: milk, milk products, sweetening ingredients, egg ingredients, stabilizers or emulsifiers, harmless flavoring or color and shall contain not more than 0.5 percent by weight of stabilizers, not less than 10 percent by weight of milk fat, and not less than 20 percent by weight of total milk solids; except when fruit, nuts, cocoa or chocolate, malted milk or confectionery are used for the purpose of flavoring; then it shall contain not less than 10 percent by weight of milk fat and 20 percent by weight of total milk solids, except for such reduction in milk fat and in total milk solids as is due to the addition of such flavoring; but in no case shall it contain less than 8 percent by weight of milk fat and 16 percent by weight of total milk solids. The finished ice cream shall contain not less than 1.6 pounds of total solids to the gallon and shall weigh not less than 4.5 pounds to the gallon. (1994 C., § 11.51.090; Ord. No. 57505, § 1(part), 1978.)

11.51.100 Ice milk.

"Ice milk" is a frozen dessert prepared by freezing, while stirring, a pasteurized mix composed of two or more of the following: milk, milk products, sweetening ingredients, egg ingredients, stabilizers or emulsifiers, and harmless flavoring or color; and it shall contain not more than 0.5 percent by weight of stabilizers, not less than 2.00 percent or more than 7.00 percent by weight of milk fat or less than 14.00 percent by weight of total milk solids. The quantity of food solids shall be not less than 1.3 pounds to the gallon, and the finished product shall weigh not less than 4.5 pounds to the gallon. (1994 C., § 11.51.100; Ord. No. 57505, § 1(part), 1978.)

11.51.110 Ingredients other than milk and milk products.

"Ingredients other than milk and milk products" includes wholesome fruits, flavoring, nuts, confection-

eries, harmless coloring, edible fats or oils other milk, fat, stabilizers and emulsifiers. (1994 C., § 11.51.110; Ord. No. 57505, § 1(part), 1978.)

11.51.120 Mellorine.

A. "Mellorine" is a food produced by freezing, while stirring, a pasteurized mix consisting of safe and suitable ingredients, including, but not limited to, milk-derived nonfat solids and animal or vegetable fat, or both, only part of which may be milkfat. Mellorine is sweetened with nutritive carbohydrate sweetener and is characterized by the addition of flavoring ingredients.

B. Mellorine contains not less than 1.6 pounds of total solids to the gallon and weighs not less than 4.5 pounds to the gallon. Mellorine contains not less than 6 percent fat and 2.7 percent protein having a protein efficiency ratio (PER) not less than that of whole milk protein (108 percent of casein) by weight of the food, exclusive of the weight of any bulky flavoring ingredients used. In no case shall the fat content of the finished food be less than 4.8 percent or the protein content be less than 2.2 percent. The protein to meet the minimum protein requirements shall be provided by milk solids not fat and/or other milk-derived ingredients.

C. This chapter does not intend to exclude the manufacture of any other product for which a standard of identity is adopted by federal standards. (1994 C., § 11.51.120; Ord. No. 57505, § 1(part), 1978.)

11.51.130 Milk and milk products.

"Milk and milk products" used in mix or frozen desserts includes milk, cream, frozen cream, plastic cream, dried cream, butter, butter oil, fluid skim milk, sweetened and unsweetened evaporated skim milk, sweetened and unsweetened condensed milk, sweetened and unsweetened condensed skim milk, superheated condensed milk, superheated condensed skim milk, dried whole milk, nonfat dried milk, sweet cream buttermilk, or any of these products from which lactose has been wholly or partially removed after crystallization. (1994 C., § 11.51.130; Ord. No. 57505, § 1(part), 1978.)

11.51.140 Misbranded.

"Misbranded" means the presence of any written, printed or graphic matter, upon or accompanying a frozen dessert or container for frozen desserts which is false or misleading, or which violates any applicable state or local labeling laws or regulations. (1994 C., § 11.51.140; Ord. No. 57505, § 1(part), 1978.)

11.51.150 Mix or frozen desserts mix.

"Mix or frozen desserts mix" is the unfrozen combination of all ingredients of a frozen dessert with or without fruits, fruit juices, confectioneries, nut meats, flavor, or harmless color. (1994 C., § 11.51.150; Ord. No. 57505, § 1(part), 1978.)

11.51.160 Official laboratory.

An "official laboratory" is a biological, chemical, or physical laboratory which is under the direct supervision of the state or local Health Authority, which has been approved by the appropriate state laboratory agency. (1994 C., § 11.51.160; Ord. No. 57505, § 1(part), 1978.)

11.51.170 Pasteurization.

"Pasteurization," "pasteurized," and similar terms shall be taken to refer to the process of heating, in approved and properly operated equipment, every particle of mix to one of the following minimum temperatures and holding at this temperature continuously for the specified time as indicated below:

A. 155° F. and holding at such temperature for at least 30 minutes;

B. 175° F. and holding at such temperature for at least 25 seconds;

provided, that nothing in this definition shall be construed as barring any other method or process as may be demonstrated to be equally efficient and which is approved by the State Health Authority. (1994 C., § 11.51.170; Ord. No. 57505, § 1(part), 1978.)

11.51.180 Person.

"Person" means an individual, partnership, corporation, company, firm, trustee, cooperative or association. (1994 C., § 11.51.180; Ord. No. 57505, § 1(part), 1978.)

11.51.190 Sherbet or fruit sherbet.

"Sherbet" is a frozen dessert prepared by freezing, while stirring, a pasteurized mix composed of two or more of the following: milk, milk products, fruit ingredients, egg ingredients, stabilizers or emulsifiers, and organic acids. Harmless coloring may be added. The titratable acidity of the finished sherbet, calculated as lactic acid, shall be not less than 0.35 percent. It shall contain not more than 0.5 percent by weight of stabilizer, not less than 1 percent or more than 2 percent by weight of milk fat, and not less than 2 percent or more than 5 percent by weight of total milk solids. The finished sherbet shall weigh not less than 6 pounds to

the gallon. (1994 C., § 11.51.190; Ord. No. 57505, § 1(part), 1978.)

11.51.200 Water ice.

"Water ice" is a frozen dessert prepared by freezing, while stirring, a mixture composed of two or more of the following: fruit ingredients, sweetening ingredients, stabilizers or emulsifiers, organic acids, and water. Harmless coloring may be added. The titratable acidity of the finished water ice, calculated as tactic acid, shall not be less than 0.35 percent. The finished water ice shall weight not less than 6 pounds to the gallon. (1994 C., § 11.51.200; Ord. No. 57505, § 1(part), 1978.)

PART II. PERMITS

11.51.210 Required—Exemptions.

It shall be unlawful for any person who does not possess a frozen dessert permit from the health officer of the City to bring into, send into, or receive into the City or its police jurisdiction, for sale, or to sell, or offer for sale therein or to have in his possession where mix or frozen desserts are sold or served any mix or frozen dessert; provided that grocery stores, restaurants, soda fountains and similar establishments where frozen dessert mix or frozen desserts are served or sold at retail, but not processed, may at the discretion of the health officer be exempt from the requirements of this section; provided, further, that any frozen dessert processor which possesses a valid food service establishment permit issued by the Health Commissioner and who possesses frozen desserts for sale only at the same location where freezing takes place, may likewise at the discretion of the health officer be exempt from the requirements of this section. (1994 C., § 11.51.210; Ord. No. 59273, § 1, 1984; Ord. No. 57505, § 3, 1978.)

11.51.220 Issuance—Fees.

A. Every frozen desserts plant, frozen desserts processor, and frozen desserts distributor shall secure an annual permit. Only a person who complies with the requirements of this chapter shall be entitled to receive and retain such a permit. Permits shall not be transferable with respect to persons and/or locations, and shall expire at the end of each calendar year.

B. An annual permit fee shall accompany each application for frozen desserts permit. All collected fees shall be deposited with the Treasurer of the City as general revenue to help defray the cost of enforcement of this chapter. The annual permit fee will be refunded if the frozen desserts permit applied for is denied. The annual permit fee will be:

1. $3,000.00 for a frozen desserts processor or distributor or plant pasteurizing or freezing over 2,000,000 gallons of frozen desserts mix per year;

2. $2,000.00 for a frozen desserts processor or distributor or plant pasteurizing or freezing between 1,000,001 and 2,000,000 gallons of frozen desserts mix per year;

3. $1,750.00 for a frozen desserts processor or distributor or plant pasteurizing or freezing between 500,001 and 1,000,000 gallons of frozen desserts mix per year;

4. $1,500.00 for a frozen desserts processor or distributor or plant pasteurizing or freezing between 50,001 and 500,000 gallons of frozen desserts mix per year; and

5. $750.00 for a frozen desserts processor or distributor or plant pasteurizing or freezing 50,000 gallons or less of frozen desserts mix per year.

C. In addition an annual permit fee of $300.00 will apply to each frozen desserts processor or distributor or plant not under the routine inspection of the Health Authority whose frozen desserts are distributed in the City under the provisions of Section 11.51.640. (1994 C., § 11.51.220; Ord. No. 57505, § 4, 1978.)

11.51.230 Suspension and revocation.

A. A permit may be temporarily suspended by the health officer: (1)(a) upon violation by the holder of any requirements of Sections 11.51.280 through 11.51.350; or (1)(b) upon violation of the holder of any requirements of Sections 11.51.360 through 11.51.590 after an opportunity for a hearing has been provided; or (2) when an imminent health hazard is found to exist; or (3) for interference with the health officer in the performance of his duties.

B. Upon serious or repeated violations or termination of business or reasonable cause, a frozen desserts permit may be revoked by the health officer. Prior to permit revocation, the health officer shall notify the permit holder in writing to appear at a hearing, at a date and time set by the health officer, so the permit holder may attempt to show cause why said permit should not be revoked.

The holder of a frozen desserts permit, after its revocation by the health officer, may appeal in writing to the Board of Public Service, stating reasons why his

permit should not have been revoked. The board may grant a hearing on his appeal, at a time and date set by the Board of Public Service, so the permit holder may show cause why his frozen desserts permit should not have been revoked. (1994 C., § 11.51.230; Ord. No. 59273, § 2, 1984; Ord. No. 57505, § 5, 1978.)

11.51.240 Hearings.

Hearings provided for in this section shall be conducted by the Health Authority or the Board of Public Service at a time and place designated within 5 days of a notice of intent to revoke the permit. The Health Authority or Board of Public Service may sustain, modify, or rescind any previous action based upon the record of information obtained during such hearing. (1994 C., § 11.51.240; Ord. No. 57505, § 6, 1978.)

11.51.250 Reinstatement.

A. Any frozen desserts plant, processor, or distributor whose permit has been suspended or revoked may make application at any time for the reinstatement of his permit.

B. The application shall contain a statement that the violation(s) or the conditions believed to have been responsible for the violation(s), specified with particularity, have been corrected.

C. After proper investigation reveals that the violation(s) and/or condition(s) have been satisfactorily corrected, the health officer shall reinstate the suspended permit or revoked permit. (1994 C., § 11.51.250; Ord. No. 59273, § 3, 1984; Ord. No. 57505, § 7, 1978.)

PART III. INSPECTION AND EXAMINATION AND STANDARDS

11.51.260 Frequency of inspection—Report.

A. Prior to the issuance of a permit, and at least once every 6 months thereafter, the Health Authority shall, except as provided for in Section 11.51.640, inspect all frozen desserts plants, the products of which are intended for consumption within the City or its police jurisdiction, and shall make as many additional inspections as are necessary for the enforcement of this chapter. If the Health Authority discovers the violation of any sanitation requirement, he shall make a second inspection after a lapse of such time as deemed necessary for the defects to be remedied, but not before the lapse of 3 days and the second inspection shall be used in determining compliance with the requirements of this chapter. Any violation of the same item of this chapter on two consecutive inspections may result in suspension of permit after proper hearing.

B. The original copy of the inspection report shall be posted by the Health Authority in a conspicuous place upon an inside wall of the frozen desserts plant and said report shall not be defaced or removed by any person except the Health Authority. Another copy of such inspection report shall be filed with the records of the Health Authority. (1994 C., § 11.51.260; Ord. No. 57505, § 9(part), 1978.)

11.51.270 Access to establishment for inspection.

Every frozen desserts plant or frozen desserts processor shall, upon the request of the Health Authority, permit him access to all parts of the establishment; and shall furnish the Health Authority, upon his request, for official use only, a true statement of the actual quantities of milk or milk products, mix or frozen desserts used or produced, sources of such milk, milk products, mix or frozen desserts used or produced, record of inspection and tests, pasteurization time and temperature records, and pertinent information as to persons employed. (1994 C., § 11.51.270; Ord. No. 57505, § 9(part), 1978.)

11.51.280 Quality standards for ingredients.

All ingredients used in frozen desserts shall be wholesome and free of adulteration or contamination. (1994 C., § 11.51.280; Ord. No. 57505, § 10(A), 1978.)

11.51.290 Production and processing standards.

All milk and milk products used as ingredients in frozen desserts mix shall be produced, processed, and/or pasteurized to conform with the following chemical, bacteriological, and temperature standards:

A. Unpasteurized Milk and Milk Products as Ingredients and Frozen Desserts Mix.

1. Temperature: cooled to 45 degrees F. or less and maintained thereafter until processed;

2. Bacterial limits: not exceeding 300,000 per ml. or gr. prior to pasteurization;

3. Antibiotics: no detectable zone determined by a method approved by the U.S. Food and Drug Administration.

B. Pasteurized Frozen Desserts and Frozen Desserts Mix.

1. Temperature: frozen desserts mix cooled to 45 degrees F. or less and maintained thereafter until processed;

2. Bacterial limits: frozen desserts and frozen desserts mix shall not exceed 20,000 per/gr.;

3. Coliform limits: frozen desserts and frozen desserts mix shall not exceed 10 per/gr.;

4. Antibiotics: no detectable zone determined by a method approved by the U.S. Food and Drug Administration;

5. Phosphatase: less than 1 ug/ml by Scharer Rapid Method (or equivalent by other means). (1994 C., § 11.51.290; Ord. No. 57505, § 10(B), 1978.)

11.51.300 Method other than pasteurization.

No process or manipulation other than pasteurization, processing methods integral therewith, and appropriate refrigeration shall be applied to milk and milk products for the purpose of removing or deactivating microorganisms. (1994 C., § 11.51.300; Ord. No. 57505, § 10(C), 1978.)

11.51.310 Required samplings.

Within any consecutive 6-month period each frozen desserts processor shall have four samples of pasteurized frozen desserts mix taken for examination in an official laboratory as designated by the Health Authority. Within any consecutive 6-month period at least four samples of frozen desserts shall be taken and examined in an official laboratory as designated by the Health Authority. Samples of frozen desserts mix and frozen desserts shall be taken while in the possession of the frozen desserts processor or frozen desserts distributor at any time prior to final delivery; provided, that when a frozen desserts distributor distributes frozen desserts directly to a retail store, grocery store, food service establishment, or similar establishment, under the provisions of Section 11.51.640, the samples may be collected at such establishment. (1994 C., § 11.51.310; Ord. No. 57505, § 10(D), 1978.)

11.51.320 Discretionary samplings.

At any time at the discretion of the Health Authority samples of ingredients used in frozen desserts may be taken to determine compliance with appropriate chemical, adulteration, and wholesomeness standards. At any time at the discretion of the Health Authority samples of unpasteurized milk and milk products used as ingredients for frozen desserts shall be taken to determine compliance with appropriate bacterial standards. (1994 C., § 11.51.320; Ord. No. 57505, § 10(E), 1978.)

11.51.330 Samples taken in official laboratories.

The examination of samples shall be performed by an official laboratory. Bacterial counts, coliform determination, phosphates tests, and other screening tests shall conform to the procedures in the latest edition of "Standard Methods for the Examination of Dairy Products" of the American Public Health Association. Examinations and tests shall include such other biological, chemical, and physical determinations as the Health Authority shall deem necessary for the detection of adulteration. (1994 C., § 11.51.330; Ord. No. 57505, § 10(F), 1978.)

11.51.340 Notice when samples not within standards.

Whenever 2 of the last 4 consecutive bacterial counts, coliform counts or cooling temperatures of samples of milk or milk products, mix or frozen desserts taken on separate days are beyond the limits specified in this chapter, the Health Authority shall send written notice thereof to person concerned. He shall then take an additional sample, within a reasonable period of time, but not before the lapse of 3 days. Suspension of the permit or withdrawal of the product involved from further distribution shall be called for when more than 2 of the last five bacterial counts, coliform determinations or cooling temperatures are beyond the limits specified in this chapter. (1994 C., § 11.51.340; Ord. No. 57505, § 10(G), 1978.)

11.51.350 Testing for adequate pasteurization.

The Health Authority shall examine at least 4 samples of pasteurized mix or frozen desserts during each consecutive 6-month period for adequate pasteurization as determined by the phosphatase test. In the case of a positive result, the probable cause shall be determined and corrected to the satisfaction of the Health Authority before the mix is frozen or the frozen desserts are sold. (1994 C., § 11.51.350; Ord. No. 57505, § 10(H), 1978.)

PART IV. SANITATION STANDARDS FOR PLANTS

11.51.360 Floor construction.

The floors of all rooms in which mix, frozen desserts, or their ingredients are processed or frozen, or in which containers and utensils are washed, shall be constructed of concrete or other equally impervious and easily cleaned material; and shall be smooth, properly drained, provided with trap drains, and kept clean

and in good repair; provided, that cold storage rooms used for storing frozen desserts and cold storage rooms used for storing milk, cream or milk products, frozen fruits, frozen eggs and comparable ingredients need not be provided with floor drains, but the floors shall be sloped to drain to one or more exits, and shall be kept clean; provided further, that dry storage rooms need not be drained and tight wood floor constructions is optional. (1994 C., § 11.51.360; Ord. No. 57505, § 11 Item A, 1978.)

11.51.370 Wall and ceiling surfaces.

Walls and ceilings of rooms in which mix, frozen desserts, or their ingredients are processed or frozen, or in which containers or utensils are washed, shall have a smooth, washable, light-colored surface and shall be kept clean and in good repair. (1994 C., § 11.51.370; Ord. No. 57505, § 11 Item B, 1978.)

11.51.380 Doors and windows.

Effective means shall be provided to prevent the access of flies and rodents. All doors shall be self-closing. (1994 C., § 11.51.380; Ord. No. 57505, § 11 Item C, 1978.)

11.51.390 Lighting and ventilation.

All rooms shall be well-lighted and ventilated. All exposed working surfaces shall provide at least 20 footcandles as measured by a light meter; provided, that dry storage and cold storage rooms shall have at least 10 footcandles of light at a distance of 30 inches from the floor. (1994 C., § 11.51.390; Ord. No. 57505, § 11 Item D, 1978.)

11.51.400 Miscellaneous protection from contamination.

There shall be separate rooms for (1) pasteurizing, processing, cooling, freezing, and packaging; (2) freezer storage; (3) cleaning of milk cans and containers; and (4) boiler rooms. In addition, plants receiving milk products or mix in bulk transport tanks shall provide, unless prohibited by existing construction, a receiving room for receiving, cleaning, and sanitizing transport tanks. Unless all milk products and mix are received in bulk transport tanks, a receiving room, separate from rooms (1), (2), and (4) above, shall be required. Rooms in which milk products, frozen desserts ingredients, or frozen desserts are handled, processed, stored or packaged, or in which products contact containers, utensils and equipment are washed, or stored, shall not open directly into any room used for domestic purposes. All milk, milk products, mix or frozen desserts that have been spilled, overflowed, or leaked out shall be discarded. (1994 C., § 11.51.400; Ord. No. 57505, § 11 Item E, 1978.)

11.51.410 Toilet facilities.

Every frozen desserts plant shall be provided with conveniently located toilet facilities conforming with the ordinances of the City. Toilet rooms shall not open directly into any room in which milk products, frozen desserts, or frozen desserts ingredients are processed or packaged. Toilet rooms shall be completely enclosed and shall have tight-fitting, self-closing doors. Dressing rooms and toilet rooms shall be kept clean, in good repair, and well ventilated. (1994 C., § 11.51.410; Ord. No. 57505, § 11 Item F, 1978.)

11.51.420 Water supply.

The water supply shall be easily accessible, adequate, and of a safe sanitary quality. (1994 C., § 11.51.420; Ord. No. 57505, § 11 Item G, 1978.)

11.51.430 Handwashing facilities.

Convenient handwashing facilities shall be provided, including hot and cold and/or warm running water, soap, and individual sanitary towels or other approved hand-drying devices. Handwashing facilities shall be kept in a clean condition and in good repair. (1994 C., § 11.51.430; Ord. No. 57505, § 11 Item H, 1978.)

11.51.440 Sanitary piping and fittings.

All piping and fittings used to conduct milk, cream, milk products, mix or frozen desserts shall be of sanitary design and construction. Mix, frozen desserts, fluid milk products and ingredients shall be conducted from one piece of equipment to another only by sanitary piping and fittings. (1994 C., § 11.51.440; Ord. No. 57505, § 11 Item I, 1978.)

11.51.450 Construction and repair of containers, utensils and equipment.

All multi-use containers, utensils and equipment with which mix, frozen desserts, milk, cream, and milk products and ingredients come in contact shall be smooth, impervious, noncorrodible, nontoxic, relatively absorbent material designed and installed as to be easily cleaned and shall be kept in good repair. All single-service containers, closures, gaskets and other articles shall be manufactured, packaged, transported

and handled in a sanitary manner. (1994 C., § 11.51.450; Ord. No. 57505, § 11 Item J, 1978.)

11.51.460 Disposal of waste.

All waste shall be disposed of in a sanitary manner. All plumbing and appurtenances thereto shall be so designed and installed as to prevent the contamination of frozen desserts or any ingredient, utensil, container or equipment by drip, condensation or backflow. (1994 C., § 11.51.460; Ord. No. 57505, § 11 Item K, 1978.)

11.51.470 Cleaning and bacterial treatment of multi-use utensils, containers and equipment.

All multi-use utensils, containers and equipment shall be thoroughly cleaned before usage, all product-contact surfaces of utensils, containers and equipment shall be subjected effectively to an approved bactericidal process immediately prior to use. Multi-use containers used for the transportation of mix shall be thoroughly rinsed immediately after emptying. (1994 C., § 11.51.470; Ord. No. 57505, § 11 Item L, 1978.)

11.51.480 Storage of multi-use utensils, containers and equipment.

After cleaning, all multi-use utensils, containers and equipment shall be stored to drain dry, and in such manner as not be contaminated before usage. (1994 C., § 11.51.480; Ord. No. 57505, § 11 Item M, 1978.)

11.51.490 Storage of single-service containers, utensils and materials.

Caps, parchment paper, wrappers, liners, gaskets, single-service sticks, spoons, covers, and containers for frozen desserts, mix or their ingredients shall be purchased and stored in sanitary tubes, wrappings or cartons; shall be kept therein in a clean, dry place until used; and shall be handled in a sanitary manner. (1994 C., § 11.51.490; Ord. No. 57505, § 11 Item N, 1978.)

11.51.500 Handling of containers and equipment.

Between bactericidal treatment and usage, and during usage, containers and equipment shall be handled or operated in such a manner as to prevent contamination of mix, frozen desserts or their ingredients. Pasteurized mix and frozen desserts shall not be permitted to come into contact with equipment with which unpasteurized mix, milk, cream or milk products have been in contact unless the equipment has been thoroughly cleaned and effectively subjected to an approved bactericidal process. (1994 C., § 11.51.500; Ord. No. 57505, § 11 Item O, 1978.)

11.51.510 Pasteurization.

All frozen desserts must be made from pasteurized mixes, provided, that, water ice made from an approved water supply and ingredients other than milk and milk products need not be pasteurized. After formulation, the entire mix except for flavoring ingredients shall be pasteurized as provided by these regulations. The design and operation of all pasteurization equipment and all appurtenances thereto shall comply with applicable specifications and operational procedures as outlined in appendices H and I of the Pasteurized Milk Ordinance, 1965 Recommendations of the United States Public Health Service, or the most recent recommendations of the United States Public Health Service. (1994 C., § 11.51.510; Ord. No. 57505, § 11 Item P, 1978.)

11.51.520 Cooling and handling.

All milk, cream and milk products in fluid form received at the frozen desserts plant for the use in frozen desserts mix shall immediately be cooled to a temperature of 45 degrees F. or less and maintained at that temperature until pasteurized; and all pasteurized mix shall be cooled immediately in approved equipment to a temperature of 45 degrees F. or less and shall be maintained thereat until frozen. (1994 C., § 11.51.520; Ord. No. 57505, § 11 Item Q, 1978.)

11.51.530 Packaging.

Packaging, cutting, molding and other preparations of mix or frozen desserts or their ingredients shall be done in a sanitary manner. (1994 C., § 11.51.030; Ord. No. 57505, § 11 Item R, 1978.)

11.51.540 Returns.

Mix or frozen desserts in broken or open containers may after delivery be returned to the plant for inspection, but shall not be sold or used for making mix or frozen desserts. (1994 C., § 11.51.540; Ord. No. 57505, § 11 Item S, 1978.)

11.51.550 Overflow and spillage.

Product drip or overflow, or spilled mix or frozen desserts or their ingredients, shall not be sold for human consumption. (1994 C., § 11.51.550; Ord. No. 57505, § 11 Item T, 1978.)

11.51.560 Personal health.

No person, while affected with any disease in a communicable form, or while a carrier of such disease,

or while affected with boils, infected wounds, sores, or an acute respiratory infection, shall engage in pasteurization, handling of ingredients, filling, packaging, or freezing operations or in any capacity in which there is a likelihood of such person contaminating mix and frozen desserts, or mix and frozen dessert contact surfaces with pathogenic organisms, or transmitting disease to other individuals; and no person known or suspected of being affected with any such disease or condition shall be employed in such a capacity. (1994 C., § 11.51.560; Ord. No. 57505, § 11 Item U, 1978.)

11.51.570 Personnel cleanliness.

All persons who come in contact with milk, cream, milk products, mix, frozen desserts, containers or equipment, shall wear clean outer garments and head coverings, and shall keep their hands clean at all times while engaged in such work. (1994 C., § 11.51.570; Ord. No. 57505, § 11 Item V, 1978.)

11.51.580 Vehicles.

All vehicles used for the transportation of mix, frozen desserts, cream, milk and milk products shall be constructed and operated so as to protect their contents from sun and contamination. Such vehicles shall be kept clean, and no substance capable of contaminating mix, frozen desserts, cream, milk and milk products shall be transported therein. Such vehicles shall have the name of the distributor prominently displayed thereon. Transport tanks used for transporting mix, cream, milk and milk products shall comply with the construction, cleaning, bactericidal treatment, storage and handling requirements of Sections 11.51.400, 11.51.450, 11.51.470, 11.51.480, and 11.51.490. Each shipment shall be sealed and labeled in an approved manner. (1994 C., § 11.51.580; Ord. No. 57505, § 11 Item W, 1978.)

11.51.590 Surroundings.

Frozen desserts plant surroundings shall be kept clean, neat, and free from conditions which might attract or harbor flies or other insects and rodents, or which otherwise constitute a nuisance. (1994 C., § 11.51.590; Ord. No. 57505, § 11 Item X, 1978.)

PART V. MISCELLANEOUS REGULATIONS

11.51.600 Sale of adulterated, misbranded mix or frozen desserts prohibited.

No person shall within the City, or its police jurisdiction, process, freeze, sell, offer or expose for sale, or have in possession with intent to sell, any mix or frozen dessert which is adulterated or misbranded. It shall be unlawful for any person, elsewhere than in a private home, to have in his possession adulterated or misbranded mix or frozen dessert. Any adulterated, misbranded, or improperly labeled mix or frozen dessert may be impounded by the Health Authority and disposed of in accordance with state laws. (1994 C., § 11.51.600; Ord. No. 57505, § 2, 1978.)

11.51.610 Labeling.

All cans, packages, and other containers enclosing frozen desserts mix or frozen dessert or their ingredients, except those filled from labeled bulk containers in retail dispensing, shall be plainly labeled or marked and shall comply with the labeling requirements of state and federal regulations. (1994 C., § 11.51.610; Ord. No. 57505, § 8, 1978.)

11.51.620 Frozen desserts which may be sold.

From this date on which the regulations take effect, no mix or frozen desserts shall be sold within the City or its police jurisdiction unless it has been processed, frozen and distributed in conformance with the requirements of this chapter. (1994 C., § 11.51.620; Ord. No. 57505, § 12, 1978.)

11.51.630 Transferring and dispensing frozen desserts.

Except as permitted by the Health Authority, no person shall transfer frozen desserts from one container to another on the street, or in any vehicle or store, or in any other place except under sanitary conditions. (1994 C., § 11.51.630; Ord. No. 57505, § 12, 1978.)

11.51.640 Frozen desserts from points beyond the limits of routine inspection.

Frozen desserts from points beyond the limits of routine inspection of the City may be sold in the City or its police jurisdiction, provided they are processed and pasteurized under provisions which are substantially equivalent to the requirements of these regulations as determined by the Health Authority. (1994 C., § 11.51.640; Ord. No. 57505, § 14, 1978.)

11.51.650 Future frozen desserts plants.

All frozen desserts plants from which mix or frozen desserts are supplied to the City, which are hereafter constructed, reconstructed, or extensively altered, shall conform in their construction to the requirements of

the regulations. Properly prepared plans for all frozen desserts plants, which are hereafter constructed, reconstructed, or extensively altered, shall be submitted to the Health Authority for approval before work is begun and signed approval shall be obtained from the Health Authority. (1994 C., § 11.51.650; Ord. No. 57505, § 15, 1978.)

11.51.660 Notification of disease.

Notice shall be sent to the Health Authority immediately by any frozen desserts processor or distributor among whose employees any infectious, contagious, or communicable disease occurs. (1994 C., § 11.51.660; Ord. No. 57505, § 16, 1978.)

11.51.670 Procedure when infection suspected.

Whenever reasonable cause exists to suspect the possibility of transmission of infection from any person concerned with the handling of milk, milk products, frozen desserts, ingredients, or frozen desserts mix, the Health Authority is authorized to require any or all of the following measures:

A. The immediate exclusion of that person from product handling;

B. The immediate exclusion of the products concerned from distribution and use; and

C. Adequate medical and bacteriological examination of the person, of his associates, and of his and their body discharges. (1994 C., § 11.51.670; Ord. No. 57505, § 17, 1978.)

Chapter 11.52

COMFORT STATIONS

Sections:

11.52.010 Supervision, operation and maintenance.

11.52.020 Towels, soap and private apartments.

11.52.030 Payment of costs.

11.52.010 Supervision, operation and maintenance.

Supervision, operation and maintenance of all public comfort stations which exist now or which may exist hereafter in the City outside of public parks shall be and are hereby vested in the Commissioner of Parks and Recreation, who shall make and enforce all necessary rules and regulations for the operation and use of such stations. (1948 C., Ch. 46, § 11; 1960 C., § 227.010; 1994 C., § 11.52.010.)

11.52.020 Towels, soap and private apartments.

The Commissioner of Parks and Recreation is hereby authorized to furnish and rent towels at not more than two cents each and to furnish and sell cakes of soap at not more than two cents each for use in such comfort stations, and to designate as pay toilets ten toilet apartments or less, in such stations at the courthouse and one more or less, in that at Union Market, for the use of each of which he shall charge five cents per person.

The Commissioner of Parks and Recreation shall pay to the City Treasurer weekly all money collected from rental of towels, use of pay toilets and sale of soap, and take therefor, duplicate receipts, one of which he shall file with the Comptroller. (1948 C., Ch. 46, §§ 12, 13; 1960 C., § 227.030; 1994 C., § 11.52.020.)

11.52.030 Payment of costs.

All money required for salaries of janitors, for purchase of all supplies, coal and toweling and for repairs in connection with operation and maintenance of such stations shall be paid from annual appropriations to the Division of Parks and Recreation. (1948 C., Ch. 46, § 14; 1994 C., § 11.52.030.)

Chapter 11.54

RESERVED

Editor's Note:

Ord. No. 69517, § 1, adopted July 24, 2013, repealed Ch. 11.54, §§ 11.54.010—11.54.030, which pertained to contraceptives and derived from 1948 C. Ch. 46, § 15(part) and 1960 C. § 772.010—772.030.

Chapter 11.56

DISEASE AND DISEASE PREVENTION

Charter:

Art. XIII § 14—C(c) Division of health

Sections:

Part I. General Provisions

11.56.010 Definitions.

11.56.020 Public Health Laboratory Director—Powers and duties.

11.56.030 Use of common towels.

11.56.040 Drinking vessels for common use.

11.56.050 Decayed or dangerous articles—Destruction.

11.56.060 Decayed or dangerous articles—Payment by City.

11.56.070 Sink, basin and tub traps.

11.56.080 Allowing filthy water or nauseous liquid waste to accumulate or be discharged.

11.56.090 Allowing putrid meat, vegetables or offal to accumulate.

11.56.100 Notice for Sections 11.56.080 and 11.56.090.

11.56.110 Liability of owner or agent.

11.56.120 Dead animals or filth.

11.56.130 Green or unsalted hides.

11.56.140 Foul liquids.

11.56.150 Collection and use of putrid fat or grease.

11.56.160 Enforcement.

Part II. Communicable Disease

11.56.180 Conditions defined.

11.56.190 Reportable diseases and conditions.

11.56.200 Report—Blanks.

11.56.210 Report—Physicians and laboratories.

11.56.250 Placarding premises—Determination of necessity.

11.56.270 Notice to Health Commissioner when sick patient leaves physician's care.

11.56.290 Termination—Order.

11.56.300 Termination—Typhoid fever.

11.56.310 Termination—Required before removal of placard or household goods.

11.56.320 Removal of persons to hospital—Communicable disease.

11.56.330 Removal of persons to hospital—Filthy conditions.

11.56.340 School attendance.

11.56.360 Reporting of exposure to communicable disease by school official.

11.56.370 Premises—Vacation and disinfection—Travel restrictions.

11.56.380 Premises—Disinfection order.

11.56.400 Public not to be endangered by persons sick with communicable disease.

11.56.410 When Health Commissioner may close business places.

11.56.420 Duties of police.

11.56.470 Diphtheria—Termination cultures.

11.56.480 Tuberculosis—Rules.

11.56.490 Tuberculosis—Examination by City Physician.

11.56.500 Tuberculosis—Sputa exam—Health Commissioner duties.

11.56.510 Tuberculosis—Sputa exam—Report and record.

11.56.520 Tuberculosis—Premises examination.

Part III. Sexually Transmitted Diseases

11.56.550 Sexually Transmitted Disease Service—Created.

11.56.580 Sexually Transmitted Disease Service—Special supervising nurse.

11.56.590 Sexually Transmitted Disease Service—Clinicians and other employees.

11.56.600 Sexually transmitted diseases enumerated.

11.56.630 Powers and duties of Health Commissioner.

11.56.640 Referral of patients.

11.56.650 Diagnostic, clinical and laboratory facilities.

11.56.660 Drugs to physicians.

11.56.680 Prostitutes and other suspects.

11.56.690 Spread of sexually transmitted diseases.

11.56.695 Penalty—Section 11.56.690.

11.56.710 Orders of Health Commissioner to be obeyed.

11.56.720 Reports—Required.

11.56.760 Reports to be confidential.

11.56.765 Penalty—Section 11.56.710.

Part IV. Quarantine

11.56.780 Definitions.

11.56.790 Establishment of quarantine or isolation.

11.56.800 Quarantine and isolation orders.

11.56.810 Isolation and quarantine premises.

11.56.820 Relief from isolation and quarantine.
11.56.830 Enforcement.
11.56.840 Penalty for violation.

PART I. GENERAL PROVISIONS

11.56.010 Definitions.

The following words, when used in this chapter, shall have the meaning ascribed to them in this section:

A. The words "filthy ash heaps," whenever used in this part, shall be held to include cinders, coal and everything that usually remains after fires and that has been mixed with garbage or filth of any kind.

B. The word "garbage" shall be held to include every accumulation of both animal and vegetable matter, liquid or otherwise, that is received from kitchens, and also putrid and unsound meat, beef, pork, fish, decayed or unsound vegetables or fruits.

C. The word "rubbish" shall be held to include all loose and decayed material and dirt-like substances that attends use or decay or which accumulates from building, storing or cleaning.

D. The words "tenement house" shall be taken to mean and include every house, building or portion thereof which is rented, leased or hired out to be occupied as the home or residence of more than two families living independent of one another. (1994 C., § 11.56.010; Ord. No. 63633, § 3(part), 1996.)

11.56.020 Public Health Laboratory Director—Powers and duties.

The Public Health Laboratory Director shall make all tests and analyses of water, and of any and all materials, medicines, food and food products, or make arrangements for a competent laboratory to perform such tests when ordered so to do by the Health Commissioner, or that he may be required to do by any rule prescribed by the Health Commissioner for the government of his office. He shall keep a record of every analysis or test that may be made in his office. He shall make a weekly report to the Health Commissioner of the transactions of his office, with such information as the Health Commissioner may require. He shall control, direct, regulate, supervise and manage the operation of the Public Health Laboratory and for that purpose is authorized to make such rules and regulations, with the approval of the Health Commissioner, as may be necessary for the execution of his orders or proper administration of the office. (1994 C., § 11.56.020; Ord. No. 63633, § 3(part), 1996.)

11.56.030 Use of common towels.

No person owning, in charge of or in control of any public toilet, public lavatory, public washroom or public comfort station, swimming pool, exercise room or club, or health facility shall maintain in or about such public toilet, public lavatory, public washroom or public comfort station any towels for use in common. The term "public lavatory, public toilet, public washroom or public comfort station," as used herein, shall be construed to mean any such place to which the general public is invited or not forbidden access or use. The term "for common use," as used herein, shall be construed to mean for use or intended to be used by more than one person. (1994 C., § 11.56.030; Ord. No. 63633, § 3(part), 1996.)

11.56.040 Drinking vessels for common use.

No drinking vessel used in common or to be used in common shall be exposed, kept, provided or permitted in any railroad station, public or private school, public playground, public park, public building or in any part of any other building or premises to which the public is admitted. (1994 C., § 11.56.040; Ord. No. 63633, § 3(part), 1996.)

11.56.050 Decayed or dangerous articles—Destruction.

Whenever any household goods, bedding, clothing, putrid or unsound meat, fish, vegetables, fruit, hides or skins of any kind or any other article is found within the City which, in the opinion of the Health Commissioner, is dangerous to the health of the inhabitants thereof, he shall have the power and authority to cause the same to be destroyed in such manner as he may direct and he may employ such persons as he sees fit for that purpose. Resistance or hindrance of any persons so employed by the Health Commissioner shall be a misdemeanor. (1994 C., § 11.56.050; Ord. No. 63633, § 3(part), 1996.)

11.56.060 Decayed or dangerous articles—Payment by City.

Before destroying any household goods, bedding or clothing in accordance with Section 11.56.050, the Health Commissioner shall cause the value of such articles to be appraised, and he shall prepare a voucher in favor of the owner of such property, whereupon the Comptroller shall draw his warrant upon the Treasurer therefor. (1994 C., § 11.56.060; Ord. No. 63633, § 3(part), 1996.)

11.56.070 Sink, basin and tub traps.

All sinks, basins and stationary tubs in every hotel, lodging, tenement, boarding house or other dwelling in the City shall be provided with proper stench traps, directly under each sink, basin or stationary tub, so connected with waste or soil pipe, and so constructed, and with the traps so adjusted as to prevent the escape therefrom of foul odors and gases to the annoyance, injury or inconvenience of any person within the City. Any person violating any of the provisions of this section shall be guilty of a misdemeanor. (1994 C., § 11.56.070; Ord. No. 63633, § 3(part), 1996.)

11.56.080 Allowing filthy water or nauseous liquid waste to accumulate or be discharged.

Any person being the owner, agent, tenant, lessee, occupant or manager of any hotel, boarding house, lodging house, dwelling house, tenement house, manufactory, hide house, tannery, pork house, market house, laundry, fish house, soap factory, brewery, distillery, butcher shop, dyeing establishment, soap boiling works, rendering works, oil factory, bone works, glue factory, sausage house, dairy, cow stable, cow lot, cattle pen or livery stable, built or maintained on any lot of ground, who shall allow to accumulate or be discharged from such places onto or in any public street, alley or private property in the City, urine, liquid waste from stables, swill, water from privy vaults, waste water from sinks, wash water, or any foul or nauseous liquid waste of any kind whatever, shall be deemed guilty of a misdemeanor. (1994 C., § 11.56.080; Ord. No. 63633, § 3(part), 1996.) City Counselor Ops.: 10325

11.56.090 Allowing putrid meat, vegetables or offal to accumulate.

Any person or owners, agent, lessees or occupants of any building, yard or lot of ground, who shall allow to accumulate or remain in or on such building, yard or lot of ground, any putrid and unsound meat, pork, fish, hides, decayed vegetables or food, manure, filthy ash heaps, garbage, offal, rubbish, dirt or filth of any kind, which, by its decay or putrefaction, could or would become offensive to human beings or detrimental to health, or shall create a nuisance, shall be deemed guilty of a misdemeanor. (1994 C., § 11.56.090; Ord. No. 63633, § 3(part), 1996.)

Charter:

Art. I § 1(25) Nuisances

City Counselor Ops.: 9419

11.56.100 Notice for Sections 11.56.080 and 11.56.090.

In the trial of any person charged with a misdemeanor, as defined by Sections 11.56.080 and 11.56.090, it must be shown that such party has been notified by the officers of the Health Department or by a notice served by the City Marshal to remedy the matter complained of, and that he has failed to obey such notice. (1994 C., § 11.56.100; Ord. No. 63633, § 3(part), 1996.)

11.56.110 Liability of owner or agent.

Whenever any owner or agent of any building in the City shall rent, lease or hire out to be occupied any building or part thereof as a home or residence of more than two families living independent of one another, or a building to different persons for stores and offices in such building, giving to each family or person the common right to halls, yard, water closets or privies, or some of them, then such owner or agent shall be liable for the condition of such halls, yard, water closets or privies, and the owner or agent may also be made a defendant in a prosecution for the violation of the provisions of this chapter and be subject to fine, the same as the occupant of the premises, and any prosecution for violation of this chapter may be maintained against the occupants, owner or agent of the premises or either or all of such parties.

Owners or agents shall only be held responsible under the provisions of this chapter where buildings are rented to different persons, as described in this section. (1994 C., § 11.56.110; Ord. No. 63633, § 3(part), 1996.)

11.56.120 Dead animals or filth.

No person shall deposit any dead animal or excrements or filth from privies or any hay, straw, dirt or rubbish of any kind or description, any filthy water or manure upon any streets, alleys or public or private property in the City. Any person found guilty of violating any of the provisions of this section shall be deemed guilty of a misdemeanor; provided, that nothing in this section shall be construed as to include manure deposited upon any private property for the purpose of cultivating the same. (1994 C., § 11.56.120; Ord. No. 63633, § 3(part), 1996.)

City Counselor Ops.: 9419

11.56.130 Green or unsalted hides.

No person shall keep in the City any green or unsalted hides for a period exceeding six hours. (1994 C., § 11.56.130; Ord. No. 63633, § 3(part), 1996.)

11.56.140 Foul liquids.

No distiller, butcher, soap boiler, tallow chandler or dyer in the City shall himself, or by any other, discharge out of or from any still house, slaughter-house, or workshop, foul or nauseous liquid of any kind whatever, into a pond or adjacent ground or into any street or public place. (1994 C., § 11.56.140; Ord. No. 63633, § 3(part), 1996.)

McQuillin:

31.27, 53.137 Water pollution

11.56.150 Collection and use of putrid fat or grease.

No soap boiler, butcher or tallow chandler shall keep, collect or use, or cause to be kept, collected or used in the City, or within one mile thereof, any stale, putrid or stinking fat or grease or other matter, or render or fry out the same, unless done in an inoffensive manner. (1994 C., § 11.56.150; Ord. No. 63633, § 3(part), 1996.)

11.56.160 Enforcement.

It shall be the duty of all police officers to watch for any violation of the provisions of this chapter and to report at once all the facts to the office of the Health Commissioner. (1994 C., § 11.56.160; Ord. No. 63633, § 3(part), 1996.)

PART II. COMMUNICABLE DISEASE

McQuillin:

24.232 Communicable, contagious and infectious diseases

11.56.180 Conditions defined.

The word "conditions," when used in this part, shall mean any of those reportable pathological conditions or matters listed under the headings entitled: Category I Diseases, Conditions and Findings and Category II Diseases, Conditions and Findings. (1994 C., § 11.56.180; Ord. No. 63633, § 4(part), 1996.)

11.56.190 Reportable diseases and conditions.

The following diseases and conditions are hereby declared reportable:

A. Category I Diseases, Conditions and Findings. Category I diseases, conditions and findings must be reported to the Saint Louis City Health Commissioner within twenty-four (24) hours of suspected diagnosis by telephone, facsimile system or other rapid communication, followed by a written report within seven (7) days. Category I diseases, conditions and findings are:

1. Diseases, findings or agents that occur naturally or from accidental exposure:

Animal (mammal) bite, wound, humans

Diphtheria

Haemophilus influenza, invasive disease

Hantavirus pulmonary syndrome

Hepatitis A

Hyperthermia

Hypothermia

Influenza, suspected—nosocomial outbreaks and public or private school closures

Lead (blood) level greater than or equal to forty-five micrograms per deciliter (&gte;45 :g/dl) in any person equal to or less than seventy-two (&lte;72) months of age

Measles (rubeola)

Meningococcal disease, invasive

Outbreaks or epidemics of any illness, disease or condition that may be of public health concern

Pertussis

Poliomyelitis

Rabies, animal or human

Rubella, including congenital syndrome

Staphylococcus aureus, vancomycin resistant

Streptococcus pneumoniae, invasive in children less than five (5) years

Syphilis, including congenital syphilis

Tuberculosis disease

Typhoid fever

2. Diseases, findings or agents that occur naturally or that might result from a terrorist attack involving biological, radiological, or chemical weapons:

Adult respiratory distress syndrome (ARDS) in patients under 50 years of age (without a contributing medical history)

Anthrax

Botulism

Brucellosis

Cholera

Encephalitis/meningitis, Venezuelan equine

Glanders

Hemorrhagic fever (e.g., dengue, yellow fever)

Plague

Q fever

Ricin

Smallpox (variola)

Staphylococcal enterotoxin B

T-2 mycotoxins

Tularemia

3. Diseases, findings or adverse reactions that occur as a result of inoculation to prevent smallpox, including, but not limited to, the following:

Accidental administration

Accidental implantation (inadvertent autoinoculation)

Bacterial infection of site of inoculation

Congenital vaccinia

Contact vaccinia (i.e., vaccinia virus infection in a contact of a smallpox vaccinee)

Eczema vaccinatum

Erythema multiforme

Generalized vaccinia

Post-vaccinial encephalitis

Progressive vaccinia (vaccinia necrosum, vaccinia gangrenosa, disseminated vaccinia)

Vaccinia keratitis

B. Category II diseases or findings shall be reported to the local Health Authority or the Department of Health and Senior Services within three (3) days of first knowledge or suspicion. Category II diseases or findings are:

Acquired immunodeficiency syndrome (AIDS)

Arsenic poisoning

Blastomycosis

California serogroup viral encephalitis/meningitis

Campylobacter infections

Carbon monoxide poisoning

CD4+ T cell count

Chancroid

Chemical poisoning, acute, as defined in the most current ATSDR CERCLA Priority List of Hazardous Substances; if terrorism is suspected, refer to Subsection A.2 of this section

Chlamydia trachomatis, infections

Coccidioidomycosis

Creutzfeldt-Jakob disease

Cryptosporidiosis

Cyclosporidiosis

Eastern equine viral encephalitis/meningitis

Ehrlichiosis, human granulocytic, monocytic, or other/unspecified agent

Escherichia coli O157:H7

Escherichia coli, shiga toxin positive, serogroup non-O157:H7

Giardiasis

Gonorrhea

Hansen disease (leprosy)

Heavy metal poisoning, including, but not limited to, cadmium and mercury

Hemolytic uremic syndrome (HUS), postdiarrhea

Hepatitis B, acute

Hepatitis B surface antigen (prenatal HBsAg) in pregnant women

Hepatitis C

Hepatitis non-A, non-B, non-C

Human immunodeficiency virus (HIV)-exposed newborn infant (i.e., newborn infant whose mother is infected with HIV)

Human immunodeficiency virus (HIV) infection, as indicated by HIV antibody testing (reactive screening test followed by a positive confirmatory test), HIV antigen testing (reactive screening test followed by a positive confirmatory test), detection of HIV nucleic acid (RNA or DNA), HIV viral culture, or other testing that indicates HIV infection Human immunodeficiency virus (HIV) test results (including both positive and negative results) for children less than two (2) years of age whose mothers are infected with HIV Human immunodeficiency virus (HIV) viral load measurement (including nondetectable results)

Influenza, laboratory-confirmed

Lead (blood) level less than forty-five micrograms per deciliter (72) months of age

Legionellosis

Leptospirosis

Listeria monocytogenes

Lyme disease

Malaria

Methemoglobinemia

Mumps

Mycobacterial disease other than tuberculosis (MOTT)

Nosocomial outbreaks

Occupational lung diseases, including silicosis, asbestosis, byssinosis, farmer's lung and toxic organic dust syndrome

Pesticide poisoning

Powassan viral encephalitis/meningitis

Psittacosis

Respiratory diseases triggered by environmental contaminants, including environmentally or occupationally induced asthma and bronchitis

Rocky Mountain spotted fever

Saint Louis viral encephalitis/meningitis

Salmonellosis

Shigellosis

Streptococcal disease, invasive, Group A

Streptococcus pneumoniae, drug resistant invasive disease

Tetanus

Toxic shock syndrome, staphylococcal or streptococcal

Trichinosis

Tuberculosis infection

Varicella deaths

West Nile fever

West Nile viral encephalitis/meningitis

Western equine viral encephalitis/meningitis

Yersinia enterocolitica

C. The occurrence of an outbreak or epidemic of any illness, disease or condition which may be of public health concern, including any illness in a food handler that is potentially transmissible through food. This also includes public health threats than could result from terrorist activities such as clusters of unusual diseases or manifestations of illness and clusters of unexplained deaths. Such incidents shall be reported to the Health Commissioner by telephone, facsimile, or other rapid communication within twenty-four (24) hours of first knowledge or suspicion. (1994 C., § 11.56.190; Ord. No. 66374, § 1, 2004; Ord. No. 63633, § 4(part), 1996.)

11.56.200 Report—Blanks.

The Health Commissioner shall, upon application, furnish the proper blank forms on which reports, as required by this chapter, shall be made. (1994 C., § 11.56.200; Ord. No. 63633, § 4(part), 1996.)

11.56.210 Report—Physicians and laboratories.

Every laboratory that tests or examines a specimen and every physician in the City who shall prescribe for or attend any person having a reportable disease or condition as declared in this chapter, shall within the times provided in this chapter, after first discovering the existence of such disease or condition, make a report, within the time limit provided, to the Health Commissioner, which report shall give the name, age, birth date, residence (street number), race and sex of the person having such disease or condition. (1994 C., § 11.56.210; Ord. No. 63633, § 4(part), 1996.)

11.56.250 Placarding premises—Determination of necessity.

The Health Commissioner, when he deems it necessary, shall have the power to cause to be placed on the inside or outside of any building or other premises or door of any room occupied, or which has been occupied, by a person having a communicable disease, excepting tuberculosis, tetanus and diseases of the eye, a printed placard giving notice of such disease. No person shall remove, deface or in any manner whatsoever obstruct such placard from public view. Every person having control of a house or premises upon any portion of which a printed placard was caused to be placed by the Health Commissioner, shall be held responsible for the removal, defacement or obstruction of such placard. (1994 C., § 11.56.250; Ord. No. 63633, § 4(part), 1996.)

11.56.270 Notice to Health Commissioner when sick patient leaves physician's care.

It shall be the duty of the attending physician on any case of a communicable disease to give written notice to the Health Commissioner if the patient so afflicted passes out of his professional care previous to the termination of the disease. (1994 C., § 11.56.270; Ord. No. 63633, § 4(part), 1996.)

11.56.290 Termination—Order.

Whenever a physician has reported to the Health Commissioner that a case of communicable disease has recovered and is ready for termination, the Health Commissioner, if he deems it necessary, may cause the examination to be made of such patient by a physician of the Division of Health. If the Health Commissioner orders such an examination and if, in the opinion of such physician, the case is ready for termination, the Health Commissioner shall order the case to be terminated and the premises disinfected, cleaned or renovated. (1994 C., § 11.56.290; Ord. No. 63633, § 4(part), 1996.)

11.56.300 Termination—Typhoid fever.

No case of typhoid fever shall be considered terminated and no longer communicable until two bacteriological examinations of the urine and feces of the typhoid fever patient shall show an absence of typhoid fever bacilli. These examinations shall be made by the Chief Bacteriologist of the Division of Health at an interval of one week. (1994 C., § 11.56.300; Ord. No. 63633, § 4(part), 1996.)

11.56.310 Termination—Required before removal of placard or household goods.

Excepting under special written permission of the Health Commissioner, no person shall remove, or aid in removing, from any placarded building or other premises, in which a person having a communicable disease shall have been reported, any household goods, bedding, clothing or any other articles, until such case has been terminated by the Health Commissioner. (1994 C., § 11.56.310; Ord. No. 63633, § 4(part), 1996.)

RSMo:

RSMo 210.080 (2016) Report of infant eye inflammation.

11.56.320 Removal of persons to hospital—Communicable disease.

Whenever the Health Commissioner shall become appraised or informed that any person residing in the City has a communicable disease which, in his opinion, may endanger the lives of the citizens of the City, it shall be his duty to make, or cause to be made, an examination of such person by a physician of the Division of Health, and an inspection of the building or premises in which he resides by an inspector of the Division of Health.

If such person is found to have a communicable disease, the Health Commissioner may, if he deems necessary, cause the person to be removed from such building or premises to an appropriate facility provided by the City for the treatment of such diseases.

If force be found necessary to make such an examination or to remove any person having a communicable disease, the Health Commissioner shall have the power and authority to use force, if he deems it necessary or judicious. (1994 C., § 11.56.320; Ord. No. 63633, § 4(part), 1996.)

City Counselor Ops.: 8429

McQuillin:

24.236 Segregation and removal of persons

11.56.330 Removal of persons to hospital—Filthy conditions.

Whenever the Health Commissioner becomes appraised or informed that any person, by reason of disease or filth, or the filth of the quarters occupied by such person, is a menace to public health, it shall be his duty to make, or cause to be made, an examination of the person by a physician of the Division of Health, and an inspection of the building or other premises by an inspector of the Division of Health.

If such person shall be, by reason of personal filth, or if the quarters occupied by such person are, by reason of filth, a menace to public health, the Health Commissioner may, if he deems it necessary, cause such person to be removed to an appropriate facility until such time as the person may be cleansed and the quarters and clothing shall be disinfected.

If force be found necessary to make such an examination of the person or buildings or other premises, or to remove the person by reason of personal filth of the person or of the quarters occupied by him, the Health Commissioner shall have the power and authority to use force, if he deems it necessary or judicious. (1994 C., § 11.56.330; Ord. No. 63633, § 4(part), 1996.)

McQuillin:

24.236 Segregation and removal of persons

11.56.340 School attendance.

No parent or guardian, or person having the care, custody or control of any minor and knowing him to have a communicable disease, shall permit such minor to attend any public, private or parochial school in the City, or to mingle with any person in a public place or public conveyance, until such minor shall be declared free from contagion by a licensed physician. No adult person knowing himself to be afflicted with or to have been reported as having any communicable disease shall attend any public, private or parochial school in the City, or shall mingle with any person in a public place or public conveyance in the City until he shall have been declared free from contagion or infection by a licensed physician. (1994 C., § 11.56.340; Ord. No. 63633, § 4(part), 1996.)

McQuillin:

24.236 Segregation and removal of persons

11.56.360 Reporting of exposure to communicable disease by school official.

Every principal of any public, private or parochial school in the City, who has reasonable cause to suspect that a teacher or pupil attending such school has been exposed to any communicable disease or is infected with any communicable disease shall have the duty to inform the St. Louis City Health Commissioner of such exposure or infection immediately. (1994 C., § 11.56.360; Ord. No. 63633, § 4(part), 1996.)

11.56.370 Premises—Vacation and disinfection—Travel restrictions.

Whenever a building or other premises or one or more City blocks or squares of ground shall have been

infected with any communicable disease, the Health Commissioner shall have the power to cause such area to be vacated by the inhabitants for the purpose of disinfecting, cleansing or renovating.

If this action is not deemed expedient or judicious by the Commissioner, he shall have the power and authority to close up the streets in front of and surrounding such area and to prohibit the inhabitants thereof, or any other persons, from passing in or out, or to and from such area, except under such rules and regulations as he may prescribe, until the area has been disinfected, the infection or contagion ceased or the Commissioner orders the restrictions removed. (1994 C., § 11.56.370; Ord. No. 63633, § 4(part), 1996.)

McQuillin:

24.236 Segregation and removal of persons

11.56.380 Premises—Disinfection order.

The Health Commissioner shall order the disinfection, cleansing or renovating of all premises found occupied, or which have been occupied, by any person removed from such premises, as prescribed in Section 11.56.370, by reason of contagious or infectious disease or filth, if he deems it necessary. (1994 C., § 11.56.380; Ord. No. 63633, § 4(part), 1996.)

11.56.400 Public not to be endangered by persons sick with communicable disease.

No person shall place others in danger of contacting any communicable disease from any person sick with such disease or from the body of a person who died of such disease by the exposure of the sick individual or dead body, by any connected negligent act, with respect to the care and custody of such person or by any needless exposure of himself. (1994 C., § 11.56.400; Ord. No. 63633, § 4(part), 1996.)

City Counselor Ops.: 8429

11.56.410 When Health Commissioner may close business places.

Whenever a person who resides in the City in any building or other premises in which there is conducted any grocery, bakery, dairy, confectionery, fruit store, restaurant, barbershop, tobacco store, dry goods or clothing store or any business where any article of food, drink, tobacco, dry goods, or clothing is manufactured, repaired, stored or sold has any communicable disease, the Health Commissioner may, if he deems it necessary, prohibit the sale or removal of any such article from the business described. He shall have the power to close such business in the building or other premises until the disease is terminated or the person sick with such disease has been removed from the building or other premises. He may direct that the building or other premises be disinfected or cleaned if he thinks such action is necessary. (1994 C., § 11.56.410; Ord. No. 63633, § 4(part), 1996.)

11.56.420 Duties of police.

It shall be the duty of the Police Department to notify the Health Commissioner whenever it considers or believes any communicable disease to exist. It shall assist the Health Commissioner, his officers or employees in the discharge of their duties whenever called upon to do so. (1994 C., § 11.56.420; Ord. No. 63633, § 4(part), 1996.)

11.56.470 Diphtheria—Termination cultures.

No case of diphtheria shall be terminated until the Chief Bacteriologist of the Division of Health shall report two negative cultures, taken on successive days from the nose or throat, or both, of such patient. (1994 C., § 11.56.470; Ord. No. 63633, § 4(part), 1996.)

11.56.480 Tuberculosis—Rules.

The Health Commissioner shall prepare rules prescribing measures essential for preventing the spread of tuberculosis, promoting its arrest and the recovery of the person suffering therefrom. He shall cause a printed copy of such rules to be distributed to all persons connected with every case of tuberculosis within the City of which he may have information. (1994 C., § 11.56.480; Ord. No. 63633, § 4(part), 1996.)

RSMo:

RSMo 199.170 *et seq.* (2016) Commitment and hospitalization of tuberculosis patients.

11.56.490 Tuberculosis—Examination by City Physician.

When a case of tuberculosis is reported to the Health Commissioner and no physician is in charge of the case, the Health Commissioner may designate a City Physician to examine and report such case. If the clinical evidence or a microscopical examination of the sputum of the patient in such case demonstrates the presence of tuberculosis, the Health Commissioner shall furnish the patient or his nurse, relative, friend or caretaker a printed copy of directions as to the best means of preventing the spread of the disease and promoting recovery of the patient. He shall instruct the inspectors of the Division of Health to report whether such direc-

tions and instructions of the Division of Health are obeyed. (1994 C., § 11.56.490; Ord. No. 63633, § 4(part), 1996.)

11.56.500 Tuberculosis—Sputa exam—Health Commissioner duties.

The Health Commissioner shall have the power to cause a microscopical examination to be made of the sputa of persons having symptoms of tuberculosis whenever it be requested by the attending physician or by a City Physician detailed to examine the case. He shall have the power to order the examination to be made by any competent person in the employ of the Division of Health, and any person so employed shall promptly make the examination and a report thereon free of charge. The result of the examination shall be reported in duplicate, one copy to be forwarded to the physician upon whose application the examination was made, and the other to the Health Commissioner. (1994 C., § 11.56.500; Ord. No. 63633, § 4(part), 1996.)

11.56.510 Tuberculosis—Sputa exam—Report and record.

It shall be the duty of every physician in the City, when called to attend any patient residing in the City who has symptoms of tuberculosis, to promptly submit specimens of sputum to the Health Division Laboratory for examination. If this examination or the clinical evidence demonstrates tuberculosis, the physician shall at once report the case to the Health Commissioner. This report shall contain the name of the patient, occupation, residence, place of employment, age, sex, nationality and social condition. A record shall be kept of such reports, which shall be accessible only on order of the Health Commissioner. (1994 C., § 11.56.510; Ord. No. 63633, § 4(part), 1996.)

11.56.520 Tuberculosis—Premises examination.

Whenever the Health Commissioner shall have information from the attending physician of the existence of a case of tuberculosis in the City, he shall cause the premises to be examined. Notes shall be taken of the sanitary condition of the premises, the number of persons living in the house, and whether the patient occupies a room alone or with others. (1994 C., § 11.56.520; Ord. No. 63633, § 4(part), 1996.)

PART III. SEXUALLY TRANSMITTED DISEASES

See also § 15.84.070

McQuillin:

24.233 Venereal diseases

11.56.550 Sexually Transmitted Disease Service—Created.

There is hereby created a service in the Communicable Disease Section of Department of Health and Hospitals, to provide for the diagnosis, treatment and control of sexually transmitted diseases which shall be under the direction of the Health Commissioner. The Health Commissioner is hereby authorized to appoint the necessary officers and employees in this division. (1994 C., § 11.56.550; Ord. No. 63633, § 5(part), 1996.)

RSMo:

RSMo 210.030 et seq. (2016) Blood tests for syphilis.

11.56.580 Sexually Transmitted Disease Service—Special supervising nurse.

There shall be one special supervising clinician. The supervising clinician shall be a graduate of a recognized school of nursing or allied health program, and shall have had at least five years practical experience in public health. The supervising clinician shall have direct control over all nurses and lab personnel and shall have such other duties as may be prescribed by the Health Commissioner and the Supervisor of the Sexually Transmitted Disease Service. (1994 C., § 11.56.580; Ord. No. 63633, § 5(part), 1996.)

11.56.590 Sexually Transmitted Disease Service—Clinicians and other employees.

There shall be such number of clinicians and other employees as may be fixed from time to time under the Charter and ordinances of the City. Clinicians shall be graduates of recognized schools of nursing or other allied health programs and those with public health experience shall be preferred. All clinicians shall be under the direct supervision of the supervising clinician. They shall perform such duties as may be assigned by the Health Commissioner and the Supervisor of Sexually Transmitted Disease Service. (1994 C., § 11.56.590; Ord. No. 63633, § 5(part), 1996.)

11.56.600 Sexually transmitted diseases enumerated.

Syphilis, gonorrhea, chancroid, chlamydia trachomatis, AIDS and HIV are designated "sexually transmitted diseases" when used in this division. They are hereby recognized and declared to be contagious, infectious, communicable and dangerous to the public

health. (1994 C., § 11.56.600; Ord. No. 63633, § 5(part), 1996.)

11.56.630 Powers and duties of Health Commissioner.

The Health Commissioner or his representative is empowered and directed:

A. To maintain a clinic for the diagnosis of sexually transmitted diseases;

B. To use every available means of determining whether a person, suspected of being afflicted with a sexually transmitted disease, is suffering from the disease in an infectious stage;

C. To ascertain the source of the infection and cause adequate investigation to be made as to the residence of the person so afflicted whenever the diseases are found to exist. In such investigation, the Health Commissioner is vested with full power of inspection and examination, of all persons, places and things as provided herein;

D. To use every proper means of suppressing prostitution. All health officers are hereby prohibited from issuing certificates or other evidences of freedom from sexually transmitted diseases. (1994 C., § 11.56.630; Ord. No. 63633, § 5(part), 1996.)

11.56.640 Referral of patients.

In accordance with approved public health practice, the Health Commissioner may, when necessary, refer indigent patients residing in the City and suffering with sexually transmitted disease to private as well as municipal agencies. The Health Commissioner or her or his representative may, when necessary, refer indigent patients residing in the City of St. Louis, for treatment to dispensaries connected with St. Louis University Medical School and the School of Medicine of Washington University and to other hospitals or institutions which are approved by her or him and by the American Medical Association. (1994 C., § 11.56.640; Ord. No. 63633, § 5(part), 1996.)

11.56.650 Diagnostic, clinical and laboratory facilities.

The Health Commissioner may provide diagnostic, clinical and laboratory facilities and general consultation service to physicians, for the diagnosis of sexually transmitted diseases in indigent patients. (1994 C., § 11.56.650; Ord. No. 63633, § 5(part), 1996.)

11.56.660 Drugs to physicians.

The Health Commissioner is authorized to supply drugs, on application, to physicians, for the treatment of sexually transmitted diseases of indigent patients. The drugs to be supplied will be those deemed necessary by the Health Commissioner. (1994 C., § 11.56.660; Ord. No. 63633, § 5(part), 1996.)

11.56.680 Prostitutes and other suspects.

A. When any person is arrested for prostitution, public solicitation or patronizing prostitution as defined in Chapter 15.34.101 of the Revised Code of the City of St. Louis, or for lewd or indecent conduct as defined in Section 15.30.020.A.1.a, b or c of the Revised Code of the City of St. Louis, the person shall be advised, in a manner deemed appropriate by the Health Commissioner, of the significant health risks associated with said activity and further shall be offered a suitable examination by a clinician of the Division of Health for the purpose of determining if such person has been exposed to a sexually transmitted disease.

B. Any person who is convicted or who pleads guilty or nolo contendere to prostitution, public solicitation, or patronizing prostitution as defined in Section 15.34.101 of the Revised Code of the City of St. Louis or for lewd or indecent conduct as defined in Section 15.30.020.A.1.a, b or c of the Revised Code of the City of St. Louis shall, as a condition of sentencing, be ordered by the court to undergo testing for exposure to for HIV, syphilis, and gonorrhea. Such testing shall be conducted by the Division of Health within 30 days of the court order.

C. After the defendant has been tested in accordance with Subsection B of this section, the Division of Health shall immediately transmit a notice to the court that said requirement has been met. The Division of Health, shall notify the defendant immediately of the result of said test and shall maintain a record of the manner in which notification was made. The confidentiality of this record shall be maintained in accordance with state statute. (1994 C., § 11.56.680; Ord. No. 64300, § 1, 1997; Ord. No. 63633, § 5(part), 1996.)

11.56.690 Spread of sexually transmitted diseases.

It shall be unlawful for any person, knowing himself to be venereally infected, to inoculate any other person with any sexually transmitted disease or to perform or commit any act which exposes any other person to inoculation of or infection with any of such

diseases. (1994 C., § 11.56.690; Ord. No. 63633, § 5(part), 1996.)

11.56.695 Penalty—Section 11.56.690.

A. Any person found guilty of violating Section 11.56.690 shall be fined an amount of not less than Three Hundred Dollars ($300.00) nor more than Five Hundred Dollars ($500.00). For any subsequent violation of said section, a fine of not less than Five Hundred Dollars ($500.00) shall be mandatory.

B. The judge may, in lieu of fine, impose no less than 40 hours of community service for persons convicted of violating Section 11.56.690 of the Revised Code of the City of St. Louis. (1994 C., § 11.56.695; Ord. No. 63633, § 5(part), 1996.)

11.56.710 Orders of Health Commissioner to be obeyed.

It shall be unlawful for any person to neglect or refuse to obey any order of the Health Commissioner authorized by this part or to interfere with or obstruct the Health Commissioner, or his representative, in the performance of the duties herein required. (1994 C., § 11.56.710; Ord. No. 63633, § 6(part), 1996.) City Counselor Ops.: 9735

11.56.720 Reports—Required.

It shall be the duty of every physician, person treating sexually transmitted disease, superintendent or principal directing officer of a hospital or dispensary or other institution devoted to the care of the sick in the City to notify the Health Commissioner, on a form furnished by him, of any individual with sexually transmitted disease under his care or supervision.

This report shall state the name or number, age, sex, race, occupation of diseased person, if known, the character and previous duration of the disease and the probable source of infection, if known.

This report shall be mailed within the time periods set forth in Section 11.56.190. (1994 C., § 11.56.720; Ord. No. 63633, § 6(part), 1996.)

11.56.760 Reports to be confidential.

All information and reports concerning persons infected with sexually transmitted diseases shall be confidential and shall be inaccessible to the public except insofar as publicity may attend the performance of the duty imposed upon the Health Commissioner by this division or the laws of the state. (1994 C., § 11.56.760; Ord. No. 63633, § 6(part), 1996.)

11.56.765 Penalty—Section 11.56.710.

A. Any person found guilty of violating Section 11.56.710 shall be fined an amount of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00). For any subsequent violation of said section, a fine of not less than Five Hundred Dollars ($500.00) shall be mandatory.

B. The judge may, in lieu of fine, impose no less than 30 hours of community service for persons convicted of violating Section 11.56.710 of the Revised Code of the City of St. Louis. (1994 C., § 11.56.765; Ord. No. 63633, § 6(part), 1996.)

PART IV. QUARANTINE

Prior code history: 1948 C. Ch. 30 §§ 76—82; 1960 C. §§ 496.010—496.070

11.56.780 Definitions.

For the purposes of this section the following words or phrases shall have the meaning given herein.

A. "Board of Police Commissioners" means the appointed Board that oversees the Metropolitan St. Louis Police Department.

B. "Chemical or radiological contamination" means a person has been exposed to and may physically have on their person any toxic or poisonous chemicals or precursors of toxic or poisonous chemicals, or radiation or radioactive materials at a level dangerous to human life.

C. "Chief of Police" means the Chief of the Metropolitan St. Louis Police Department.

D. "City" means the City of St. Louis, Missouri.

E. "Communicable disease" means a disease or condition, the infectious agent of which may pass or be carried, directly or indirectly, from the body of one person or animal or contaminated environment to the body of another person or animal.

F. "Decontamination" means the cleansing process by which chemical or radiological contamination is removed from a person, animal or environment.

G. "Exposure" means contact with suspected cases of a disease or a contaminated environment where there may be contact, absorption, ingestion or inhalation of an infectious agent or chemicals or radiation or radioactive materials that may result in infection with a disease or radiation illness.

H. "Health Commissioner" means the Health Commissioner of the City of St. Louis, Missouri, in the Department of Health and Hospitals, or their designee.

I. "Isolation" means the separation for the longest period of communicability of infected individuals, premises and animals from other individuals and animals in places and under conditions as will prevent the direct and indirect transmission of the communicable disease from infected individuals or animals who are susceptible or who may spread the agents to others.

J. "Quarantine" means the separation from others of persons, groups of persons, premises or animals who had the opportunity to acquire a communicable disease or chemical or radiological contamination through an infected person, animal or contaminated environment. The usual period of time will not be longer than the longest period of communicability of the disease or in the event of chemical and radioactive contamination, until decontamination occurs. The purpose of quarantine is to prevent direct or indirect transmission of the communicable disease, chemical or radiological contamination to other persons, animals or environments.

1. "Complete quarantine" means a limitation of freedom of movement of persons, groups of persons or animals exposed to a communicable disease for a usual period of time not longer than the longest period of communicability of the disease or in the event of exposure to chemicals or radiation, until decontamination occurs, in order to prevent effective contact with the general population.

2. "Modified quarantine" means a selective, particular limitation of freedom of movement of persons, groups of persons or animals determined on the basis of differences in susceptibility or danger of disease transmission. Modified quarantine is designed to meet particular situations and includes, but is not limited to, the exclusion of persons from geographic areas or school or child care, the closure of schools, child care centers and places of public or private assembly and the prohibition or restriction of those exposed to a communicable disease or chemical or radiation contamination from engaging in travel into or from a specified area or in a particular occupation or activity.

3. "Quarantine of premises" means the closure of buildings, or parts of buildings, both public and private, until they have been declared safe by the Director, Commissioner or their designated representative. (1994 C., § 11.56.780; Ord. No. 66374, § 3, 2004.)

Cases:

Ordinance of the city requiring boats coming from below Memphis, having on board more than a specified number of passengers, to remain in quarantine not less than forty-eight hours, is not repugnant to the commerce clause of the United States Constitution. *City of St. Louis v. McCoy,* 18 Mo. 146 (1853); St. *Louis v. Boffinger,* 19 Mo. 9 (1854).

McQuillin:

24.237 Quarantine regulations

11.56.790 Establishment of quarantine or isolation.

The Health Commissioner shall establish appropriate quarantine or isolation rules and regulations as necessary to prevent the introduction or transmission of communicable disease, as defined in this chapter, or chemical or radiological contamination into, within or from the City, including the St. Louis Lambert International Airport and the water works. (1994 C., § 11.56.790; Ord. No. 66374, § 4, 2004.)

11.56.800 Quarantine and isolation orders.

A. Any quarantine and isolation order issued by the Health Commissioner shall be in writing and contain:

1. The identification of the person, group of persons, premises or animals to be confined, closed or excluded;

2. The basis for the Health Commissioner's belief that the person, group of persons or animals have a communicable disease, may be incubating a communicable disease, or have chemical or radiological contamination and that the person, group of persons or animal(s) pose(s) a substantial threat to the public health and that quarantine or isolation is necessary to protect and preserve the public health, or that a premises is in such a condition that could lead to such communicable disease or contamination. The premises shall be posted with a notice that the premises is under quarantine. It shall be a violation of this chapter for any person without the consent of the Commissioner to remove said notice;

3. The period of time during which the order shall remain effective;

4. The place of confinement or exclusion as designated by the Health Commissioner; and

5. The steps necessary to prohibit the illegal entry or occupancy of a premises.

B. Further orders of quarantine and isolation pursuant to this section may be issued to previously quarantined or isolated persons, groups of persons, premises or animals in the event the Health Commissioner deems additional quarantine and isolation time is nec-

essary to protect and preserve the public health. (1994 C., § 11.56.800; Ord. No. 66374, § 5, 2004.)

11.56.810 Isolation and quarantine premises.

Entry into quarantine and isolation premises shall be restricted under the following conditions:

A. The Health Commissioner may authorize physicians, health care workers or others access to individuals in quarantine or isolation as necessary to meet the needs of quarantined or isolated individuals.

B. No person, other than a person authorized by the Health Commissioner, shall enter quarantine or isolation premises.

C. Any person entering a quarantine or isolation facility must possess infection control knowledge and use appropriate personal protective equipment.

D. Any person entering a quarantine or isolation premises with or without the authorization of the Health Commissioner may be quarantined or isolated.

E. The Health Commissioner may take whatever action necessary to decontaminate any premises and charge the owner the cost of such decontamination and said cost shall be a lien on the property. (1994 C., § 11.56.810; Ord. No. 66374, § 6, 2004.)

11.56.820 Relief from isolation and quarantine.

A person confined or excluded, or owner of an animal confined under this section, shall have relief from isolation if the Health Commissioner determines:

A. The person or animal ordered confined or excluded is no longer infected with a communicable disease;

B. The person or animal no longer poses a substantial threat to the public health; and

C. Confinement or exclusion of the person or animal is not necessary and the least restrictive alternative to protect and preserve the public health;

D. The owner of the quarantined premises produces documentation satisfactory to the Health Commissioner showing either mitigation or that no contamination (chemical, radiological or biological) is present and that the premises no longer presents any health hazard.

Any person aggrieved from a decision or order of the Health Commissioner may appeal such decision within ten (10) working days of the decision or order to the Director of Health and Hospitals. Said Director shall hold a hearing within ten (10) working days of the appeal. The hearing shall determine if the decision or order was appropriate. An appeal does not stay the decision of the Health Commissioner or the Director. Neither the City of St. Louis nor any of its employees, agents, contractors or members of the Police Department shall be held responsible for any lost wages, income or other damages due to the quarantine or isolation imposed hereunder. (1994 C., § 11.56.820; Ord. No. 66374, § 7, 2004.)

11.56.830 Enforcement.

Whenever an order of the Health Commissioner or Director in relation to quarantine and isolation of the City of St. Louis or property owned by the City, including the St. Louis Lambert International Airport and the water works, a copy of the order shall be transmitted to the Board of Police Commissioners and the Chief of Police, the City Fire Department and the City Emergency Management Agency (CEMA) and to officials in the county where the premises are located if not in the City. The Board of Police Commissioners and the Chief of Police, the City Fire Department and the City Emergency Management Agency (CEMA) are directed to aid and assist the Health Commissioner, or the Commissioner's designee, in the enforcement of the quarantine or isolation order whenever requested to do so. (1994 C., § 11.56.830; Ord. No. 66374, § 8, 2004.)

11.56.840 Penalty for violation.

Every person convicted of a violation of any section of this chapter shall be punished by a fine of not less than one ($1.00) dollar, nor more than five hundred ($500.00) dollars, or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day that any violation shall continue, it shall constitute a separate offense. (1994 C., § 11.56.840; Ord. No. 66374, § 9, 2004.)

Chapter 11.58

NUISANCES

For permit allowing manufacturer to emit offensive odors, see, Ch. 8.54.

For further regulations, see Title 25.

Charter:

Art. I § 1(25) Nuisances

Art. I § 1(26) Location of businesses and occupations

Art. XIII § 15(e) Department of public safety—Building division

RSMo:

RSMo 84.090 (2016) Board of police—duties, powers (St. Louis)

City Counselor Ops.: 9916

Sections:

Part I. Abatement

11.58.010 Nuisance defined.
11.58.020 Health Commissioner's powers.
11.58.030 Building and premises inspected for nuisances.
11.58.040 Bids for abating nuisances.
11.58.050 Misdemeanor not to abate.
11.58.060 City's right to recover cost.
11.58.070 Without notice—Method.
11.58.080 Without notice—Cost.
11.58.090 With notice—Hearing.
11.58.100 With notice—Order.
11.58.110 With notice—Method.
11.58.120 With notice—Cost.
11.58.130 Record of proceedings.
11.58.140 Interested persons may appear at hearings.
11.58.150 Pro rata distribution of cost of abating nuisance located on property of more than one owner.
11.58.160 Right of entry.
11.58.170 Authorization to enjoin nuisances.

Part II. Conditions Enumerated

11.58.190 Bone, fat or glue business.
11.58.200 Soap, and other factories.
11.58.210 Unclean drains, garbage boxes and ditches.
11.58.220 Water seepage from defective hydrants or water pipes.
11.58.230 Lots containing offensive water.
11.58.240 Discharge of filthy or offensive water.
11.58.250 Wells or cisterns.
11.58.260 Waste, rags, barrels and other refuse.
11.58.270 Garbage, vegetable waste, litter and filth.
11.58.280 Operation of business for dealing in sexual obscenity.

PART I. ABATEMENT

11.58.010 Nuisance defined.

Every continuing act or thing done, made, permitted, allowed or continued on any property, public or private, by any person or legal entity, their agents or servants or any person or legal entity who aids or abets therein, to the damage or injury of the inhabitants of the City or a substantial part thereof, shall be deemed a public nuisance unless otherwise provided for in this Code. (1948 C., Ch. 45, § 1; 1960 C., § 535.010; 1994 C., § 11.58.010; Ord. No. 56705, § 1, 1974.)

Cases:

A charter provision giving the city the power to declare, prevent and abate nuisances on private property gives the city the power to pass an ordinance forbidding the owner of the premises from permitting a growth of weeds. *City of St. Louis v. Galt,* 179 Mo. 8, 77 S.W. 876 (1903).

Erection and maintenance of a frame building on lots adjoining a building owned by plaintiff, in violation of a city ordinance, and which is a public nuisance under such ordinance, and which allegedly damaged plaintiff's property, states a good cause of action as against a demurrer. *Harman v. City of St. Louis,* 137 Mo. 494, 38 S.W. 1102 (1897).

A smoke ordinance which declared the emission of dense black or thick gray smoke into the air a nuisance held to be beyond the power of the city, unreasonable and void. *City of St. Louis v. Heitzeberg Packing and Provision Co.,* 141 Mo. 375, 42 S.W. 954 (1897).

Whether a business or occupation (storage of scrap iron, rags and junk) is a nuisance so as to justify zoning ordinance prohibiting the use of property for such business within certain districts is a question of fact. *City of St. Louis v. Evraiff,* 301 Mo. 231, 256 S. W. 489 (1923).

Ordinance will not be declared void for vagueness if ordinance is susceptible to any reasonable construction that will sustain it. *City of Clarkson Valley v. Jones,* 872 S.W.2d 531 (1994).

McQuillin:

24.58 Generally, what constitutes a nuisance

11.58.020 Health Commissioner's powers.

Nothing in any ordinance now in force or that may hereafter be enacted relating to nuisances or denominating particular acts as misdemeanors or prescribing penalties therefor shall be construed as limiting or interfering with the duties and powers of the Health Commissioner relative to the condemnation and abatement of any matter which in law constitutes a nuisance. (1948 C., Ch. 45, § 2; 1960 C., § 535.020; 1994 C., § 11.58.020.)

Charter:

Art. XIII § 14—C(c) Division of health

McQuillin:

24.70 et seq. Abatement by municipality

11.58.030 Building and premises inspected for nuisances.

Police officers and any officer, agent or employee of the Division of Health or representative appointed by

the Health Commissioner are hereby authorized to enter and inspect all buildings and parts of buildings and other premises for the purpose of examining the sanitary condition thereof and for the discovery and abatement of nuisances therein.

If any nuisance or unsanitary condition be found on such inspection, it shall be reported forthwith to the Health Commissioner. (1948 C., Ch. 45, § 3; 1960 C., § 535.030; 1994 C., § 11.58.030.)

City Counselor Ops.: 10053

11.58.040 Bids for abating nuisances.

Bids for abating nuisances upon the order of the Health Commissioner, shall be sealed and accompanied by a cashier's or treasurer's check on a bank or trust company located in this City and shall be payable to the City Treasurer in the amount of the deposit required by the advertisements.

The Health Commissioner shall let the work by contract to the lowest responsible bidder, first requiring bond to the City. The Health Commissioner may reject any bid when not satisfied with the character or responsibility of such bidder and may reject all bids submitted and readvertise the work. (1948 C., Ch. 45, § 4; 1960 C., § 535.040; 1994 C., § 11.58.040.)

11.58.050 Misdemeanor not to abate.

If the owner, his agent and the occupant fail to abate a nuisance after an order by the Health Commissioner to do so, each shall be guilty of a misdemeanor. (1948 C., Ch. 45, § 5; 1960 C., § 535.050; 1994 C., § 11.58.050.)

11.58.060 City's right to recover cost.

Nothing in this chapter shall be construed as abandoning or limiting the City's right by civil action to recover the expense incurred in abating any nuisance. (1948 C., Ch. 45, § 6; 1960 C., § 535.060; 1994 C., § 11.58.060.)

11.58.070 Without notice—Method.

In the case of a nuisance which the Health Commissioner is authorized, by the Charter, to abate without notice, he may use any suitable means or assistance for that purpose. He may be aided by employees of the Division of Health, day laborers especially employed for that purpose, any other help or assistants necessary therefor or, at his discretion, he may let a contract for such work. (1948 C., Ch. 45, § 7(part); 1960 C., § 535.070(part) ; 1994 C., § 11.58.070.)

11.58.080 Without notice—Cost.

The Health Commissioner shall certify the cost of abating the nuisance to the Comptroller, who shall draw his warrant upon the treasurer for the payment thereof, if help not otherwise paid by the City has been utilized.

The Comptroller shall cause a special tax bill for the cost to the City of abating the nuisance to be prepared and assessed against the property on which the nuisance was located and against the person guilty of causing or allowing such nuisance to exist. This special tax bill shall be collected like other taxes and be a first lien on the property until paid. (1948 C., Ch. 45, § 7(part); 1960 C., §§ 535.070(part), 535.080; 1994 C., § 11.58.080.)

11.58.090 With notice—Hearing.

In the case of a nuisance which the Health Commissioner is required, by the Charter, to give notice to the property owner or his agent and hold a hearing prior to declaring such condition to be a nuisance and ordering its abatement, the Health Commissioner shall give five days' notice of a hearing prior to declaring the nuisance and ordering its abatement, specifying in such notice the day and hour of the hearing. (1948 C., Ch. 45, § 8(part); 1960 C., § 535.090(part); 1994 C., § 11.58.090.)

11.58.100 With notice—Order.

If, after such hearing, the Health Commissioner shall order the owner of the property on which the nuisance is located or his agent or the occupant of the property to abate the nuisance and if it is not abated by the owner, his agent or the occupant within the time prescribed by the Health Commissioner in his order, the Health Commissioner shall abate this nuisance. (1948 C., Ch. 45, § 8(part); 1960 C., § 535.090(part); 1994 C., § 11.58.100.)

11.58.110 With notice—Method.

The Health Commissioner may use any suitable means or assistance for the purpose of abating any nuisance described in Sections 11.58.090 and 11.58.100, whether employees of the Division of Health, day laborers especially employed for that purpose, any other help or assistance necessary therefor or, at his discretion, he may let a contract for the work after advertising three times for competitive bids. The last publication of this advertisement must be at least five days before the date appointed for opening the bids. These advertise-

ments shall state the general nature of the work and the time and place of receiving bids therefor. (1948 C., Ch. 45, § 9(part); 1960 C., § 535.100(part); 1994 C., § 11.58.110.)

11.58.120 With notice—Cost.

The Health Commissioner shall certify the cost of abating the nuisance to the Comptroller, who shall draw his warrant upon the treasurer for the payment thereof, if help not otherwise paid by the City has been utilized.

The Comptroller shall cause a special tax bill for the cost to the City of abating the nuisance to be prepared and assessed against the property on which the nuisance was located and against the person guilty of causing or allowing the nuisance to exist. This special tax bill shall be collected like other taxes and be a first lien on the property until paid. (1948 C., Ch. 45, § 9(part); 1960 C., §§ 535.100(part), 535.110; 1994 C., § 11.58.120.)

11.58.130 Record of proceedings.

The Health Commissioner shall keep a record of proceedings in cases of abatement of nuisances ordered by him. (1948 C., Ch. 45, § 10; 1960 C., § 535.120; 1994 C., § 11.58.130.)

11.58.140 Interested persons may appear at hearings.

At hearings before the Health Commissioner relating to the abatement of nuisances as provided for in this chapter, the interested persons may appear in person, by attorney or may file an affidavit in their own behalf. (1948 C., Ch. 45, § 11; 1960 C., § 535.130; 1994 C., § 11.58.140.)

11.58.150 Pro rata distribution of cost of abating nuisance located on property of more than one owner.

If any nuisance abated by the Health Commissioner extended before abatement over the property of more than one owner, over a plurality of City lots or over a plurality of plots or parcels of land, the cost of abating such nuisance shall be assessed in proportion to the amount of work and expense for each proportionate part of the entire work and the area. The special tax bills provided for in this chapter shall be levied and collected accordingly. In determining who is the owner of any particular lot, plot or parcel of land for the pro rata distribution of the assessment of the cost, each group of owners, as, for instance, in joint tenancy or in common, shall be deemed a single owner in order to preserve to the City its lien against the particular lot, plot or parcel of land under the special tax bill levied against such property. (1948 C., Ch. 45, § 12; 1960 C., § 535.140; 1994 C., § 11.58.150.)

11.58.160 Right of entry.

Any person employed, or contracted with, for the abatement of a nuisance as provided for in this chapter and any agent or employee of such person shall have the right of entry for that purpose into and upon any premises. Any interference with such entry or entry by any police officer, any officer, agent or employee of the Division of Health or by any representative of the Health Commissioner for the purpose of sanitary inspection or the discovery or abatement of any nuisance shall constitute a misdemeanor. (1948 C., Ch. 45, § 13; 1960 C., § 535.150; 1994 C., § 11.58.160.) City Counselor Ops.: 10053

11.58.170 Authorization to enjoin nuisances.

In addition to any and all provisions in this chapter concerning abatement of nuisances by various City officials, the City Counselor, in the name of the City, is hereby authorized to apply to any appropriate court of the State of Missouri for an injunction to enjoin the continuance of any public nuisance defined in this chapter or in any other chapter in this Code. The aforesaid application or petition for an injunction shall be subject to all appropriate state procedural rules and laws concerning injunctions. (1960 C., § 535.160; 1994 C., § 11.58.170; Ord. No. 56705, § 2, 1974.)

PART II. CONDITIONS ENUMERATED

11.58.190 Bone, fat or glue business.

The business or any part thereof, of any or either of them, of bone crushing, bone boiling, bone grinding, bone burning, bone drying, fat burning, fat boiling, fat rendering, fat drying, gut cleaning or the making of glue or the manufacture of fertilizing material of any kind or description, from any dead animals or parts thereof, or any boiling of offal, swill, fat or grease of any description which shall be done or carried on in an offensive, unclean or defective manner in any building, yard or lot of ground within the limits of the City shall be deemed a nuisance. (1948 C., Ch. 45, § 15; 1960 C., § 536.010; 1994 C., § 11.58.190.)

11.58.200 Soap, and other factories.

If any owner or occupier of any soap factory, candle factory, oil factory, glue factory, hemp factory,

varnish factory, porkhouse, sausage house, lard house, or place where lead is corroded by manure, shall permit the same to remain unclean, or conduct their business to the annoyance of the citizens of this City, or any of them, the same shall be deemed a nuisance. (1948 C., Ch. 45, § 16; 1960 C., § 536.020; 1994 C., § 11.58.200.)

11.58.210 Unclean drains, garbage boxes and ditches.

Any unclean, stinking, foul, defective or filthy drain, ditch, tank or gutter, or any leaking, broken slop, garbage or manure boxes, or receptacles of like character whenever found within the limits of the City, shall be deemed a nuisance. (1948 C., Ch. 45, § 17; 1960 C., § 536.030; 1994 C., § 11.58.210.)

McQuillin:

31.22 Drains as nuisances

11.58.220 Water seepage from defective hydrants or water pipes.

Whenever in any cellar, or basement part thereof, of any house or building within the limits of the City, there may be found water occasioned by leakage from defective hydrants, water pipes, sewer pipes, cisterns or wells, gutters, drains, rain spouts or seepage from the surrounding earth or the walls of any cellar or basement shall be found to be damp or moist from any of the causes named in this section, then such water, leakage, seepage or moisture shall be deemed a nuisance. (1948 C., Ch. 45, § 18; 1960 C., § 536.040; 1994 C., § 11.58.220.)

11.58.230 Lots containing offensive water.

Any lot or piece of ground within the limits of the City, on which there is a pond or pool of unwholesome, impure or offensive water, shall be deemed a nuisance. (1948 C., Ch. 45, § 19; 1960 C., § 536.050; 1994 C., § 11.58.230.)

McQuillin:

24.260 Stagnant water as nuisance

11.58.240 Discharge of filthy or offensive water.

Whenever from any distillery, brewery, tannery, hide house, porkhouse, laundry, fish house, soap factory or any yard, dwelling, store or factory, or any yard or enclosure of any kind whatsoever within the limits of the City there is discharged into or on any street, avenue, wharf, alley, sidewalk, gutter or any vacant lot, any filthy or offensive water, smell or liquid waste or refuse of any kind of an offensive character which is offensive or which is liable to become so, the same shall be deemed a nuisance. (1948 C., Ch. 45, § 20; 1960 C., § 536.060; 1994 C., § 11.58.240.)

Cases:

Water discharged into street by auto cleaning business did not violate this section, since evidence did not establish that water, which contained biodegradable solvent, was filthy or offensive. *City of St. Louis v. Roe,* 823 S.W. 2d 29 (Mo.App. 1991).

McQuillin:

24.586 Water discharge on streets as nuisance

11.58.250 Wells or cisterns.

Any well or cistern on any property within the limits of the City, whenever a chemical analysis shows that the water of such well or cistern is of an impure or unwholesome nature, shall be deemed a nuisance. (1948 C., Ch. 45, § 21; 1960 C., § 536.070; 1994 C., § 11.58.250.)

11.58.260 Waste, rags, barrels and other refuse.

Whenever there shall be found in or upon any lot or piece of ground within the limits of the City, any dirt gathered in cleaning yards, waste of mills or factories, or any rags, damaged merchandise, wet, broken or leaking barrels, casks or boxes, or any materials which are offensive or tend by decay to become putrid or to render the atmosphere impure or unwholesome, the same shall be deemed a nuisance. (1948 C., Ch. 45, § 22; 1960 C., § 536.080; 1994 C., § 11.58.260.)

11.58.270 Garbage, vegetable waste, litter and filth.

All vegetable waste, litter, garbage, filth or refuse of any nature, kind or description whatsoever found in or upon any private alley, yard or area within the limits of the City, shall be deemed a nuisance. (1948 C., Ch. 45, § 23; 1960 C., § 536.090; 1994 C., § 11.58.270.)

11.58.280 Operation of business for dealing in sexual obscenity.

The conducting or engaging in business at premises within the City of St. Louis for the substantial or principal purpose of vending or trading in sexually obscene materials, at wholesale or retail, or the giving of sexually obscene live exhibitions or performance, as defined in and prohibited by the laws of the State of Missouri or the City of St. Louis, is hereby declared to be a public nuisance. (1960 C., § 536.110; 1994 C., § 11.58.280; Ord. No. 56705, § 3, 1974.)

Chapter 11.59

PRESCRIPTION DRUG MONITORING PROGRAM (PDMP)

Sections:

11.59.010	**Title of act; scope; certain persons exempt.**
11.59.020	**Definitions.**
11.59.030	**Establishment of monitoring program by the Department; coordination with St. Louis County Department of Public Health.**
11.59.040	**Dispensation information to be closed pursuant to law.**
11.59.050	**Director to notify law enforcement or regulatory agency upon reasonable belief of a law or professional standards violation.**
11.59.060	**Persons authorized to be provided dispensation information.**
11.59.070	**Pharmacists or prescribers not required to obtain information from the Health Department.**
11.59.080	**Penalties.**
11.59.090	**Establishment of Prescription Drug Monitoring Program Fund.**
11.59.100	**Deposit in Prescription Drug Monitoring Program Fund.**

11.59.010 Title of act; scope; certain persons exempt.

A. This chapter shall be known as the "City of St. Louis Prescription Drug Monitoring Program" or the "PDMP."

B. The provisions of the PDMP shall not apply to persons licensed pursuant to RSMo Ch. 340, a chapter which deals with the licensing of veterinarians. (1994 C., § 11.59.010; Ord. No. 70277, § 1, 5-31-2016.)

11.59.020 Definitions.

As used in this chapter, the following terms shall have the meanings ascribed to them:

A. "Controlled substance" means a drug, substance, or immediate precursor in Schedules I through V as set out in RSMo Ch. 195.

B. "Department" or "Health Department" means the City of St. Louis Health Department.

C. "Director" means the Director of the City of St. Louis Health Department, or the person or persons duly designated by the Director to carry out the duties of the Director specified in the PDMP.

D. "Dispenser" means a person who delivers a Schedule II, III, or IV controlled substance to a patient. However, the term does not include:

1. A hospital as defined in RSMo 197.020 that distributes such substances for the purpose of inpatient care or dispenses prescriptions for controlled substances at the time of discharge from such facility;

2. A practitioner or other authorized person who administers such a substance; or

3. A wholesale distributor of a Schedule II, III, or IV controlled substance.

E. "Patient" means a person who is the ultimate user of a drug for whom a prescription is issued or for whom a drug is dispensed, not including a hospice patient enrolled in a Medicare-certified hospice program who has controlled substances dispensed to him or her by such hospice program;

F. "Schedule II, III, or IV controlled substance" means a controlled substance listed in Schedules II, III, or IV as set out in r RSMo Ch. 195 or as set out in the Controlled Substances Act, 21 U.S.C. Section 812. (1994 C., § 11.59.020; Ord. No. 70277, § 2, 5-31-2016.)

11.59.030 Establishment of monitoring program by the Department; coordination with St. Louis County Department of Public Health.

A. The Director of the Health Department shall coordinate and cooperate with the St. Louis County Department of Public Health to establish and maintain one PDMP program for monitoring the prescribing and dispensing of all Schedule II, III, and IV controlled substances by professionals licensed to prescribe or dispense such substances in the City of St. Louis and may implement such departmental rules which in the opinion of the Director are necessary to implement such program. The program shall operate so as to be consistent with federal law concerning regulation of narcotics and with privacy of lawful users of narcotics. The rules may provide for the Director to suspend the requirement of reporting a particular category of information pursuant to Subsection B of this section, if the Director determines that so reporting will conflict with collection of other reported information by the

collection management system of the monitoring program. The rules shall be effective upon approval of the Board of Aldermen.

B. Within seven business days of having dispensed a Schedule II, III, or IV controlled substance, the Dispenser of same shall submit to the Department, or to an agency or entity designated by the Department, information regarding such dispensing. The information shall be submitted electronically. The information submitted for each dispensing shall, at minimum, include:

1. The pharmacy's Drug Enforcement (DEA) number;

2. The date of dispensation;

3. If dispensed via a prescription:

a. The prescription number or other unique identifier;

b. Whether the prescription is new or a refill;

c. The prescriber's DEA or National Provider Identifier (NPI) number;

d. The National Drug Code (NDC) of the drug dispensed;

e. The quantity and dosage of the drug dispensed;

f. An identifier for the patient to whom the drug was dispensed, including, but not limited to, any one of the following: a driver's license number; the patient's government-issued identification number; the patient's insurance cardholder identification number; or the patient's name, address, and date of birth.

C. The Dispenser's submission of the required information shall be in accordance with transmission standards established by the American Society for Automation in Pharmacy or any of its successor organizations.

D. The Director is authorized to issue a waiver of the electronic transmission requirement to a Dispenser demonstrably unable to comply with the requirement. A waiver shall expire one year from the date of its issuance. Required information submitted under a waiver shall be submitted within the same time frame as is required herein for electronic transmission.

E. A Dispenser who has not received a waiver of the electronic submission requirement but who, due to unforeseen circumstances, is temporarily unable to transmit dispensation information electronically may upon application to the Director receive an extension of up to 10 business days in which to submit the required dispensation information by electronic transmission, which extension may be renewed upon subsequent showing of need by the applicant Dispenser.

F. The Director shall make a decision concerning an application for a waiver or extension within three business days of receipt thereof. An applicant for a waiver or extension who has been aggrieved by a decision of the Director may appeal the decision according to law within three business days of the Director's decision. (1994 C., § 11.59.030; Ord. No. 70277, § 3, 5-31-2016.)

11.59.040 Dispensation information to be closed pursuant to law.

A. Except when provided to persons or agencies authorized by this chapter to receive such information, dispensation information submitted to the Department or its designee is a closed record and not subject to public disclosure except as provided by law. No person shall provide such information to any person or agency not authorized by this chapter or the Department to receive it. A request for dispensation information made under RSMo Ch. 610 shall be referred to the City Counselor, who shall take all reasonable and lawful steps to ensure nondisclosure of the information.

B. The Director shall develop and maintain procedures to ensure that the privacy and confidentiality of patients and personal information collected, recorded, transmitted, and maintained are not disclosed to persons not authorized by this chapter to receive dispensation information. (1994 C., § 11.59.040; Ord. No. 70277, § 4, 5-31-2016.)

11.59.050 Director to notify law enforcement or regulatory agency upon reasonable belief of a law or professional standards violation.

The Director shall review dispensation information transmitted to the Department or its designee, and if the Director develops a reasonable belief that a violation of law has occurred, or develops a reasonable belief that a breach of professional standards has occurred, the Director shall notify the appropriate law enforcement agency or the appropriate professional licensing, certification, or regulatory agency. The Director may provide any dispensation information requested by such entities when advised that such information is required for conduct of an official investigation. (1994 C., § 11.59.050; Ord. No. 70277, § 5, 5-31-2016.)

11.59.060 Persons authorized to be provided dispensation information.

A. Dispensation information and other data compiled by the Department or its designee in connection with a monitoring program established by the Director may be provided to the following persons upon a duly made request:

1. Persons, whether in or out of the State of Missouri, who are authorized to prescribe or dispense controlled substances, if the requesting person demonstrates that the request is made for the purpose of providing medical or pharmaceutical care for a patient;

2. Persons who request their own dispensation information in accordance with law;

3. The State Board of Pharmacy;

4. Any state board charged with regulating a professional authorized to prescribe or dispense controlled substances, and which has duly requested the information or data in the course of a current and open investigation into the acts of a professional under the jurisdiction of the state board. Only information related to the subject professional shall be provided by the Director;

5. Local, state, and federal law enforcement or prosecutorial officials, both in or outside of Missouri, who are engaged in the administration, investigation, or enforcement of laws governing prescription drugs based on a specific case and under a subpoena issued pursuant to court order;

6. The MO HealthNet Division of the Missouri Department of Social Services regarding MO HealthNet program recipients; or

7. A judge or other judicial officer under a subpoena issued pursuant to court order.

B. In addition to the above-specified persons, the Director may provide dispensation information and data to public or private entities for statistical or education purposes; however, the Director shall first delete any information that could reasonably be thought usable to identify individual persons. (1994 C., § 11.59.060; Ord. No. 70277, § 6, 5-31-2016.)

11.59.070 Pharmacists or prescribers not required to obtain information from the Health Department.

This chapter shall not be construed or interpreted to require a pharmacist or prescriber to obtain dispensation information possessed or maintained by the Health Department. (1994 C., § 11.59.070; Ord. No. 70277, § 7, 5-31-2016.)

11.59.080 Penalties.

A. No person, absent lawful authority, shall knowingly access or disclose prescription or dispensation information maintained by the Department or its designee pursuant to the PDMP, or knowingly violate any other provision of the PDMP.

B. Any person convicted of violating this section shall be punished by a fine of up to $500.00 per violation or up to 90 days in jail per violation, or both. (1994 C., § 11.59.080; Ord. No. 70277, § 8, 5-31-2016.)

11.59.090 Establishment of Prescription Drug Monitoring Program Fund.

Upon the passage and approval of this chapter, the Comptroller is authorized and directed to establish a fund to be designated as the "Prescription Drug Monitoring Program Fund" for the purpose of helping to fund a Prescription Drug Monitoring System and Prescription Drug Monitoring Program. All interest earned by the funds deposited in such special account shall be retained in the account to be appropriated according to provisions of this chapter. All expenditures from such fund shall be appropriated in accordance with applicable law. (1994 C., § 11.59.090; Ord. No. 70277, § 9, 5-31-2016.)

11.59.100 Deposit in Prescription Drug Monitoring Program Fund.

The Comptroller, upon receipt of funds designated for the "Prescription Drug Monitoring Program Fund" shall place said receipted payments in the "Prescription Drug Monitoring Program Fund" established in Section 11.59.080. (1994 C., § 11.59.100; Ord. No. 70277, § 10, 5-31-2016.)

Chapter 11.60

DRUGS

Cross reference:

Additional court costs for violation of chapters 11.60 and 11.61, § 11.61.040

McQuillin:

24.410 Generally, pure food and drugs

Sections:

Part I. Inhaled Gases

11.60.010 Enumerated.
11.60.020 Prohibited acts.
11.60.030 Hearing—Conviction.
11.60.040 Possession for medicinal purposes.

Part II. Drugs and Drug Derivatives

11.60.070 Possession of certain items.
11.60.080 Enumerated.
11.60.090 Prescription required.
11.60.100 Narcotic possession.
11.60.110 Exceptions.
11.60.120 Prima facie evidence.
11.60.130 Penalty for violation for Sections 11.60.100—11.60.130.
11.60.140 Opium dens.
11.60.150 Adulteration.

Part III. Controlled Substance Possession

11.60.200 Prohibited possession.
11.60.220 Penalty for violation.
11.60.230 Prohibited premises for manufacturing, storing or distributing controlled substances.
11.60.240 Prohibited management or control of premises.
11.60.250 Definitions.
11.60.260 Penalty for violation of Section 11.60.230.
11.60.270 Enhanced penalty for violation.
11.60.280 Drug-related overdoses and medical assistance—Immunity from prosecution for possession or control.

Part IV. Reserved

PART I. INHALED GASES

11.60.010 Enumerated.

No person under the age of eighteen years shall have in his control, custody or possession any glue, cement, typewriter correction fluid, shellac thinner or other similar product which can cause a condition similar to alcoholic or narcotic intoxication or which can induce a state of euphoria or contains any of the following substances, components or ingredients:

Ammonium thiocyanate
Acetone
Benzene
Hexane
Butyl alcohol
Tricresyl phosphate
Glycols
Methylene chloride
Propylene dichloride
Perchloroethylene
Orthodichlorobenzene
Methyl chloroform
(1, 1, 1-trichloroethane)
Secondary butyl acetate
Aliphatics
Terpenes and cyclics of terpene structure
Diacetone

Turpentine, kerosene, gasoline and other petroleum solvents

Ethyl alcohol
Sulfonated oils
Borax
Amyl acetate
Cyclohexanone
Isopropyl alcohol
Toluene
Xylene
Carbon tetrachloride
Ethylene dichloride
Trichloroethylene
Monochlorobenzene
Trichlorobenzene
Ethyl acetate
Isopropyl acetate
Aromatics
Methyl ethyl ketone
Methyl isobutyl ketone
Glycol ethers
Cresylic acid
Mineral spirits
Butyl cellosolve

Ephedrine HCL—as a single active medicinal ingredient in a solid oral dosage form, or other toxic derivatives thereof.

Provided, however, that kerosene, gasoline and other petroleum solvents may be sold to and possessed by such person when delivered directly into tanks of motor vehicles or delivered into receptacles for immediate

redelivery into such motor vehicle tanks. (1960 C., § 757.010; 1994 C., § 11.60.010; Ord. No. 62533, § 2, 1992; Ord. No. 61396, § 2, 1989; Ord. No. 54694, § 1, 1967; Ord. No. 54496, § 1, 1967.)

11.60.020 Prohibited acts.

No person shall sell, offer for sale, attempt to sell, give away, distribute or otherwise transmit to or furnish to a person under the age of eighteen any of the substances, components, ingredients, chemicals or compounds listed in Section 11.60.010 which can cause a condition similar to alcoholic or narcotic intoxication or induce a state of euphoria.

No person shall sniff, breathe, huff or inhale from any bag, package or container of any kind of fumes of any of the substances specified in Section 11.60.010 for the purpose of causing a condition similar to alcoholic or narcotic intoxication or a state of euphoria. No person who is under the influence of or in a state of euphoria from such substances shall walk, sit, lie or run in any public street, sidewalk, park or alley or operate any vehicle upon any street or publicway. (1960 C., § 757.020; 1994 C., § 11.60.020; Ord. No. 56508, §§ 1, 2, 1973; Ord. No. 54496, § 2, 1967.)

11.60.030 Hearing—Conviction.

No person charged with a violation of Section 11.60.010 shall be convicted hereunder where, upon a court hearing, it is determined that the control, custody or possession of any of the prohibited substances, components, ingredients, chemicals or compounds listed in Section 11.60.010 was for a purpose or use other than to induce an intoxicated condition or a state of euphoria in a human being. (1960 C., § 757.040; 1994 C., § 11.60.030; Ord. No. 54496, § 4, 1967.)

11.60.040 Possession for medicinal purposes.

The provisions of Sections 11.60.010—11.60.040 shall not apply where the sale, control, custody or possession of any of the prohibited substances, components or ingredients listed herein resulted from the direction or prescription of any duly licensed physician, surgeon, dentist or other authorized practitioner of medicine prescribed for use in the usual course of his practice or profession. (1960 C., § 757.050; 1994 C., § 11.60.040; Ord. No. 54496, § 5, 1967.)

PART II. DRUGS AND DRUG DERIVATIVES

11.60.070 Possession of certain items.

No person under the age of twenty-one years shall buy or have in his possession, custody or control any substance be it solid, liquid, gaseous and however compounded or prepared, containing any drug or drug derivative, including proprietary or "brand name" drug preparations which, however common and useful, are capable, through abusive use, of inducing a state of intoxication or euphoria in a human being unless the same has been acquired upon the prescription of a person duly licensed to practice the healing arts, including dentists, for use in the usual course of his practice or profession. (1960 C., § 757.060; 1994 C., § 11.60.070; Ord. No. 55368, § 2, 1969.)

McQuillin:

24.240 Cocaine, marijuana and other drugs

11.60.080 Enumerated.

The following drugs, drug derivatives, and proprietary drug preparations shall be included under the prohibitive provisions of Section 11.60.070, but not necessarily limited to, the following:

Chlordiazepoxide (Librium)
Cocaine
Secobarbital (Seconal)
Mephentermine (Wyamine)
Myristica Oil (Oil of Nutmeg)
Lullamin
Methamphetamine (Desoxyn, Methedrine)
Paregoric
Codeine—its salts and all preparations and mixtures thereof and any products containing codeine in any amount whatever
Barbituric acid
Amphetamine (Phenylisopropylamine)
Lysergic acid
Tryptamine
Paraldehyde
Chloral Hydrate
Mescal buttons
Glutethimide (Doriden)
Diazepam (Valium)
Oxazepam (Serax)
Pentobarbital (Nembutal)
Amobarbital (Amytal)
Pirtadenia peregrina (Cohoba)
Phenmetrazine Hydrochloride—Preludin
Methapyrilene (Lullamin, Semikon)
Opium Alkaloids
Meprobamate
Phenylethylamine
Datura stramonium

Calamus
Amyl Nitrate
Mescaline

List of Barbiturates

Any other salts or derivatives of barbituric acid or compounds, preparations or mixtures thereof will be considered to be a part of this list.

Chemical Classification	Generic Name
5-Allyl-5-cyclopentenylbarbituric acid	
5-Allyl-5-isobutylbarbituric acid	Allylisobutylbarbituric acid. Allylbarbituric acid.
5-Allyl-5-isopropylbarbituric acid	Aprobarbital. Allylisopropylbarbituric acid. Allylisopropylmalonyurea.
5-Allyl-5-isopropyl-1-methylbarbituric acid	
5-(2-Bromoallyl)-5-isopropyl-1-methylbarbituric acid	
5-(2-Bromoallyl)-5-(1-methylbutyl)-barbituric acid	Beta-Bromoallyl sec-amylbarbituric acid.
5-sec-Butyl-5-(2-bromoallyl)-barbituricacid	Butallylonal.
5, 5-Diallylbarbituric acid	Diallyl barbituric acid.
5, 5-Diethylbarbituric acid	Barbital. Barbitone. Diethylbarbituric acid. Diethylmalonyurea.
1, 5-Dimethyl-5-(1-cyclohexenyl) barbituric acid	Hexabarbital sodium.
5, 5-Dipropylbarbituric acid	Dipropylbarbituric acid.
5-Ethyl-5-butylbarbituric acid	Butethal. Butobarbital.
5-Ethyl-5-sec-butylbarbituric acid	Butabarbital sodium.
5-Ethyl-5-(1-cyclohexenyl)-barbituric acid	Cyclobarbital.
5-Ethyl-5-cyclopentenyl-barbituric acid	
5-Ethyl-5-hexylbarbituric acid	Hexethal sodium.
5-Ethyl-5-isoamylbarbituric acid	Amobarbital.
5-Ethyl-5-isopropylbarbituric acid	Probarbital.
5-Ethyl-5-(1-methylbutyl)-barbituric acid	Pentobarbital sodium. Soluble pentobarbital.
5-Ethyl-5-(1-methylbutyl)-2-thiobarbituric acid	Thiopental sodium. Thiopentone sodium.
5-Ethyl-5-(1-methyl-1-butenyl)-barbituric acid	Vinbarbital.
5-Ethyl-5-phenylbarbituric acid	Phenobarbital. Phenobarbitone. Phenylethylmalonyurea.
5-Ethyl-5-phenyl-1-methyl-barbituric acid	Mephobarbital.
5-Ethyl-5-(1-piperidyl)-barbituric acid	
5-Isopropyl-5-(2-bromoally)-barbituric acid	Propollylonal.
5-Methyl-5-phenylbarbituric acid	Phenylmethylbarbituric acid. All lithium, sodium, potassium, magnesium, calcium, strontium, and ammonium salts of the foregoing chemical derivatives of barbituric acid
Sodium-5-allyl-5-(1-methylbutyl)-barbiturate	Secobarbital sodium. Soluble secobarbital.
All salts of the foregoing chemical derivatives formed by replacing the sodium with lithium, potassium, magnesium, calcium, strontium or ammonium radical	

List of Hallucinogenic Drugs

Chemical Classifications	Generic Name
d-Lysergic Acid Diethylamide Lysergic Acid Monoethylamide	LSD, LSD 25
1-Methyl Lysergic Acid Diethylamide	MLD 41
2-Bromlysergic Acid Diethylamide	2-Brom LSD
1-Acetyl-Lysergic Acid Diethylamide	ALD-52
1-Hydroxymethyl Lysergic Acid Diethylamide	OML-632 LSM-775 DAM-57 BOL-148 LPD-824 LAE-32 UML-491
3, 4, 5-Trimethoxyphenylethyamine oc-Methylmescaline	Mescaline (Peyote)
4-Phosphoryloxy-N, N-dimethyltryptamine	Psilocybin (Psilocibin)
4-Hydroxy-N, N-dimethyltryptamine	Psilocyn (Psilocin)
N, N-Dimethyltryptamine	DMT
4-Methyl-2, 5-dimethoxyocmethyl-phenylethylamine	STP, DOM
Methoxymethylenedioxyphenylisopropylamine	MMDA
4-Methylocmethyltryptamine	MP 809
N, N-Dimethylocmethyltryptamine	
3-(2-Dimethylaminoethyl)-5-indolol	Bufotenine
Adrenochrome	Adrenochrome
7-Methoxy-1-methyl-9-pyrid (3, 4-b) indole	Harmine
Ibogaine	Ibogaine
Tabernanthine	Tabernanthine

Chemical Classifications	Generic Name
Ibogamine	Ibogamine
N, N-Diethyltryptamine	DET
oc-Methyltryptamine	Yohimbine
N, N-Diethyl-6-hydroxytryptamine	

List of Stimulants

Chemical Classifications	Generic Names	Common Forms
1-Phenyl-2-Amino-Propane, or-dl-a-Methyl-Phenethyl-Amine,	Amphetamine, or-dl-Amphetamine,	Amphetamine Base, Amphentamine Hydrochloride,
Phenyl-isopropyl-Amine,	Amphetaminum	Amphetamine Phosphate
B-Amino-Propyl-Benzene	Racemic Amphetamine,	Amphetamine Sulfate,
Benzyl-Methyl-Carbinamine,	Monobasic dl-Amphetamine,	dl-Monobasic Amphetamine Phosphate,
Racemic-Desoxy-Norephedrine	Dibasis di-Amphetamine	Dibasic Amphetamine Phosphate
Levo-1-Phenyl-3-Amino Propane, -or-1-a-Methyl-Phenethyl-Amine	Levo-Amphetamine -or-Levamphetamine, 1-Amphetamine	Levoamphetamine Base, Levoamphetamine Succinate, Levoamphetamine Sulfate
Dextro-a-Methyl-Phenethyl-Amine, -or-d-1-Phenyl-2-Amino Propane	Dextro-Amphetamine -or-dl-Amphetamine, Monobasic Dextro-Amphetamine	Dextro Amphetamine Base, Dextro Amphetamine Hydrochloride, Dextro Amphetamine Phosphate Dextro Amphetamine Sulfate Dextro Amphetamine Tannate, Dibasic Dextro Amphetamine Phosphate
d-1-Phenyl-2-Methyl-Amino-Propane -or-d-N-a-Methyl-Phenethyl-Amine, d-Phenyl-Isopropyl-Methyl Amine d-N-Methyl-D-Phenyl-Isopropylamine, d-N-Methyl-Amphetamine	Methamphetamine -or-Methyl-amphetamine d-Desoxyephedrine, Methamphetaminium, d-Methamphetamine,	Methamphetamine Hydrochloride Methamphetamine Saccharate, d-Desoxyephedrine Hydrochloride
dl-1-Phenyl-2-Methyl-Amino-Propane	dl-Methamphetamine,	dl-Methamphetamine Hydrochloride,
	-or-Racemic Methamphetamine- dl-Desoxyephedrine	dl-Desoxyephedrine Hydrochloride, dl-Desoxyephedrine Base
1-Phenyl-2-Nicotinyl-Amino-Propane	Nicotinyl Amphetamine	Nicotinyl Amphetamine

(1960 C., § 757.070; 1994 C., § 11.60.080; Ord. No. 55368, § 3, 1969.)

11.60.090 Prescription required.

No person shall sell, offer for sale, attempt to sell, give away, distribute or otherwise transmit or furnish to a person under the age of twenty-one years any of the drugs, drug derivatives and proprietary drug preparations listed in Section 11.60.080, except persons duly licensed to practice the healing arts, including dentists and licensed pharmacists, dispensing said drugs upon prescription by persons licensed to practice the healing arts, including dentists. (1960 C., § 757.080; 1994 C., § 11.60.090; Ord. No. 55368, § 4, 1969.)

11.60.100 Narcotic possession.

It shall be unlawful for any person to have in his possession, custody or control, or to sell or offer or expose for sale, or to give or offer to give to another any narcotics as defined by the laws of this state. (1960 C., § 771.010; 1994 C., § 11.60.100; Ord. No. 45952, § 1, 1952.)

RSMo:

RSMo 195.010 et seq. (2016) Narcotics generally.

11.60.110 Exceptions.

Sections 11.60.100—11.60.130 shall not apply to any person lawfully authorized to possess, sell or give away such narcotics. (1960 C., § 771.020; 1994 C., § 11.60.110; Ord. No. 45952, § 2, 1952.)

11.60.120 Prima facie evidence.

The possession, selling or offering to sell, give or offering to give to another such narcotics, shall be prima facie evidence of the violation of Sections 11.60.100—11.60.130. (1960 C., § 771.030; 1994 C., § 11.60.120; Ord. No. 45952, § 3, 1952.)

11.60.130 Penalty for violation for Sections 11.60.100—11.60.130.

Any person violating the provisions of Sections 11.60.100—11.60.130 shall be deemed guilty of a mis-

demeanor and upon conviction thereof shall be punished by a fine of not less than fifty dollars nor more than five hundred dollars, or by imprisonment in the workhouse for not more than ninety days, or by both such fine and imprisonment. (1994 C., § 11.60.130; Ord. No. 45952, § 4, 1952.)

11.60.140 Opium dens.

Any person who shall maintain and keep in the City any place or room where opium or hasheesh, or any extract of such drugs, or any compound in which such drugs are ingredients, is smoked by himself or others, or who shall attend at any room or place for the purpose of assisting or aiding any person to smoke opium or hasheesh, or any extract of such drugs, or any compound in which such drugs are ingredients, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 43; 1960 C., §§ 770.010, 770.020; 1994 C., § 11.60.140.)

11.60.150 Adulteration.

Whoever shall adulterate, for the purpose of sale, any drugs or medicine, without making the same known at the time of the sale to the purchaser, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 26, § 24; 1960 C., § 494.030; 1994 C., § 11.60.150.)

PART III. CONTROLLED SUBSTANCE POSSESSION

11.60.200 Prohibited possession.

Possession of controlled substances under circumstances which are unlawful under federal or State of Missouri laws is hereby prohibited. (1994 C., § 11.60.200; Ord. No. 66417, § 2, 2004; Ord. No. 62173, § 1, 1990.)

11.60.220 Penalty for violation.

Any person convicted of violating Section 11.60.200 shall be fined no less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment up to ninety (90) days or by both fine and imprisonment. (1994 C., § 11.60.220; Ord. No. 66417, § 3, 2004; Ord. No. 62173, § 3, 1990.)

11.60.230 Prohibited premises for manufacturing, storing or distributing controlled substances.

It shall be unlawful for any person to knowingly open or maintain any premises for the purpose of unlawfully manufacturing, storing, distributing or using any controlled substance. (1994 C., § 11.60.230; Ord. No. 65482, § 1, 2001.)

11.60.240 Prohibited management or control of premises.

It shall be unlawful for any person to manage or control any building, room or enclosure as an owner, lessee, manager, agent, employee or mortgagee and intentionally rent, lease or make available for use, with or without compensation, the building, room or enclosure for the purpose of unlawfully manufacturing, storing, distributing or using a controlled substance. (1994 C., § 11.60.240; Ord. No. 65482, § 2, 2001.)

11.60.250 Definitions.

For purposes of this chapter the term "controlled substances" shall be as defined in RSMo Ch. 195.010 et seq., as amended. (1994 C., § 11.60.250; Ord. No. 65482, § 3, 2001.)

11.60.260 Penalty for violation of Section 11.60.230.

Any person found guilty or entering a plea of guilty to a violation of any provision of this chapter shall be subject to a fine of not less than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or both a fine and imprisonment. (1994 C., § 11.60.260; Ord. No. 65482, § 4, 2001.)

11.60.270 Enhanced penalty for violation.

A person found guilty of the offense of unlawfully possessing or using any controlled substance or distributing or delivering any controlled substance to another person in or within one thousand feet of the real property comprising a public park or in or within one thousand feet of a church, school or daycare center shall be subject to a fine of not less than five hundred dollars ($500.00) or a term of imprisonment of not less than ninety (90) days or both a fine and term of imprisonment. (1994 C., § 11.60.270; Ord. No. 67306, § 1, 2006.)

11.60.280 Drug-related overdoses and medical assistance—Immunity from prosecution for possession or control.

A. *Definitions.* "Overdose" means a controlled substance-induced acute condition that results in a life-threatening emergency to the individual who ingested, inhaled, injected, or otherwise bodily absorbed a controlled substance.

B. *Immunity.* A person who, in good faith, seeks or obtains emergency medical assistance for a person experiencing an overdose or other medical emergency

or for himself or herself shall not be arrested, charged, prosecuted, convicted, or have his or her property subject to civil forfeiture or otherwise be penalized for the following violations of the Saint Louis Code of Ordinances if the evidence was gained as a result of seeking or obtaining emergency medical assistance:

1. Possession, control, distribution, or attempted distribution of any of the enumerated drugs and drug paraphernalia under Section 11.60.010, Section 11.60.070, Section 11.60.080, and Section 11.60.100;

2. Possession, control, distribution, or attempted distribution of any of controlled substances under Section 11.60.200;

3. Possession, distribution, control, or attempted distribution of marijuana under Section 11.60.310;

4. Maintaining, managing or controlling premises under Section 11.60.140, Section 11.60.230; and

5. Adulterating under Section 11.60.150.

C. *Limitations.* This section does not prohibit a police officer from arresting an individual person for an outstanding warrant pursuant to RSMo 221.510(1). This section does not prohibit a person from being arrested, charged, or prosecuted based on an offense other than an offense listed in Subsection B of this section, whether or not the offense arises from the same circumstances as the seeking of health care. The protection in this section from prosecution for possession crimes under Section 11.60.150 shall not be grounds for suppression of evidence or dismissal in charges unrelated to this chapter.

D. *Resources.* A person who, in good faith, seeks or obtains emergency medical assistance for a person experiencing an overdose or other medical emergency or for himself or herself shall not be arrested at the discretion of the police officer. Any police officer who is in contact with such person or persons should provide appropriate information and resources for substance-related assistance. (1994 C., § 11.60.280; Ord. No. 70311, §§ 1—4, 6-23-2016.)

PART IV. RESERVED

Editor's Note:

Ord. No. 71429, § 2, approved December 13, 2021, amended the Code by repealing former Part IV, §§ 11.60.300—11.50.330, in its entirety. Former Part IV pertained to marijuana, and derived from the 1994 Code, § 11.60.320; Ord. No. 69429, approved April 29, 2013; and Ord. No. 70709, approved February 2, 2018.

Chapter 11.61

ENFORCEMENT OF MARIJUANA LAWS

Editor's Note:

Ord. No. 71429, § 2, approved December 13, 2021, amended the Code by repealing former Ch. 11.61, §§ 11.61.010—11.61.040, and §§ 1, 3—5 of said ordinance added a new Ch. 11.61. Former Ch. 11.61 pertained to paraphernalia for use with illegal drugs, and derived from the 1994 Code, §§ 11.61.010—11.61.040; Ord. No. 66419 of 2004; Ord. No. 68404, approved July 7, 2009; and Ord. No. 68405, approved July 7, 2009.

Prior ordinance history: Ord. 61507, 66419, 68404, 68405

Sections:

11.61.010	**Definitions.**
11.61.020	**Use of city resources to enforce marijuana laws.**
11.61.030	**Probable cause and reasonable suspicion.**
11.61.040	**Recognition of Article XIV of the Missouri State Constitution.**

11.61.010 Definitions.

"Enforce" means to investigate, arrest, refer for prosecution, or punish.

"Flowering plant," "nonflowering plant," and "clone" mean the Missouri Department of Health and Senior Service's definition of the same.

"Marijuana" means all parts of the plant genus Cannabis in any species or form thereof, including, but not limited to Cannabis sativa L., Cannabis indica, Cannabis Americana, Cannabis ruderalis, and Cannabis gigantea, and any other strains commonly understood within the scientific community to constitute marijuana, whether growing or not, the seeds thereof, the resin extracted from any part of the plant; and every compound, hybrid, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds or resin, including marijuana-infused products. "Marijuana" does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil or cake, or the sterilized seed of the plant which is incapable of germination.

"Marijuana-infused products" means products that are infused with marijuana or an extract thereof and

are intended for use or consumption other than by smoking, including, but not limited to, edible products, ointments, tinctures and concentrates.

"Openly" means occurring or existing in a manner that is unconcealed, undisguised, or obvious.

"Paraphernalia" means "All equipment, products, substances, and materials of any kind which are used, intended for use, or designed for use, in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance or an imitation controlled substance." (RSMO 195.223)

"Police officer" means any employee of the City of St. Louis tasked with enforcing the law and the power of arrest.

"Probable cause" means looking at the "totality of the circumstances and mak[ing] a common sense practical decision whether there is a fair probability that contraband or evidence of crime will be found in a particular place." Illinois v. Gates, 462 U.S. 213, 238 (1983), State v. Roggenbuck, 387 S.W.3d 376 (Mo. banc 2012).

"Publicly" means occurring or existing in a public place; or occurring or existing in any outdoor location that is clearly observable from a public place.

"Public place" means any street, alley, park, sidewalk, public building other than individual dwellings, or any place of business or assembly open to or frequented by the public, and any other place to which the public has access.

"Qualified patient" means a Missouri medical marijuana card holder pursuant to Article XIV of the Missouri State Constitution and the rules and regulations of the Missouri Department of Health and Senior Services.

"Resources" means any funds, money, personnel, personnel time, grants, use of facilities, property, real estate, approval, or other means that is owned or controlled by the City of St. Louis, except the Civil Courts Building, the Carnahan Courthouse, and other city-owned facilities used by the 22nd Judicial Circuit of the State of Missouri. "Resources" shall include, but not be limited to, all activities of the Division of Police, the City Counselor's Office, and the Municipal Court.
(Ord. No. 71429, § 1, 12-13-2021.)

11.61.020 Use of city resources to enforce marijuana laws.

A. Except as provided in this section, no resources of the City of St. Louis shall be expended or otherwise used to enforce laws that permit the punishment for the use or possession of marijuana involving two (2) or less ounces of marijuana, or six (6) or fewer flowering marijuana plants or marijuana paraphernalia against any individual or entity. The City of St. Louis may expend resources to enforce laws that permit punishment for the use or possession of marijuana or marijuana paraphernalia against:

1. Any individual who provides marijuana to an individual under the age of twenty-one (21) unless such person is a qualified patient;

2. Any individual who possesses more than six (6) flowering marijuana plants for cultivation unless such individual holds a cultivation license or patient cultivation identification card;

3. Any individual who transfers, distributes, sells, or cultivates marijuana on land or in buildings where the owner of the land or buildings has prohibited marijuana on the premises and has provided reasonable notice by a lease provision or posted notice to tenants or occupants of the land or buildings that such conduct is prohibited;

4. Any individual who possesses flowering marijuana plants who does not keep all such plants indoors, locked and secure, unless such individual has been granted a cultivation license by the Missouri Department of Health and Senior Services.

5. Any individual or entity that openly and publicly displays or consumes marijuana except for displays and consumption on private residential property where the person consuming marijuana is either an owner of the property, a person who has a leasehold interest in the property, or any other person who has been granted express or implied permission to consume marijuana on the property by the owner or the lessee of the property.

6. Any individual who is not in compliance with this state or local law.
(Ord. No. 71429, § 3, 12-13-2021.)

11.61.030 Probable cause and reasonable suspicion.

A. In light of the Missouri Constitution's sanction of medical marijuana, the smell of marijuana, whether raw or burnt, the visual presence of smoke or

vapor of marijuana, the visual presence of marijuana or marijuana infused products, the visual presence of less than flowering plants, nor the visual presence of marijuana paraphernalia is no longer indicia that a crime has been or is being committed, and as such shall not be sufficient to establish probable cause to search, seize, or arrest any individual or entity or their property.

B. Notwithstanding Subsection A of this section, the smell of marijuana, whether raw or burnt, the visual presence of smoke or vapor of marijuana, the visual presence of marijuana or marijuana infused products, or the visual presence of flowering plants may be sufficient to establish a finding of reasonable suspicion which may be grounds, subject to officer discretion rooted in an analysis of the totality of the circumstances, for a brief stop for the sole purpose of determining whether an individual is a qualified patient.

1. If the individual is a qualified patient, the suspicion is relieved and the individual is free to go. If the individual is not a qualified patient, subject to officer discretion and a totality of the circumstances analysis, probable cause may be determined for the purpose of further search or seizure.

2. If the police officer is unable to verify, for any reason, that an individual is not a qualified patient, the officer may, given an analysis of the totality of the circumstances, collect all information necessary to issue a summons. If an individual appears at any court date with proof that they are a qualified patient, the matter shall be dismissed.

C. The odor or presence of marijuana and related products may, when combined with additional factors and context, represent an element of a finding of probable cause or reasonable suspicion, subject to officer discretion and further interpretation by Missouri courts.

D. This chapter shall not prohibit police officers from making an arrest where there is a valid warrant, where there is probable cause to believe that an individual is driving under the influence, or where there is probable cause to believe that an individual is violating other state or local laws.
(Ord. No. 71429, § 4, 12-13-2021.)

11.61.040 Recognition of Article XIV of the Missouri State Constitution.

A. Recognizing that the citizenry of the State of Missouri overwhelmingly voted to adopt Article XIV of the Missouri State Constitution, the City of St. Louis recognizes the legitimacy and medical authenticity of the state's medical marijuana program.

B. Subject to Civil Service Commission Rule and/or Department of Personnel Regulation, any city employee who is a qualified patient may present their medical marijuana card to avoid adverse employer actions based on a positive drug test for marijuana.

C. Nothing in this section shall prevent the City of St. Louis from taking adverse employer actions based on acute marijuana intoxication while on duty.
(Ord. No. 71429, § 5, 12-13-2021.)

Chapter 11.62

BIRTHS, DEATHS AND BURIALS

Charter:

Art. XIII § 14—C(c) Division of health.

McQuillin:

24.269 et seq. Burial of the dead and cemeteries.

Sections:

Part I. Moving Dead Bodies

11.62.020 **Removal without permit.**

11.62.030 **Certain dead bodies not to be brought to City.**

Part II. Burials and Crematories

11.62.050 **Interment order—Compliance required.**

11.62.060 **Interment order—Noncompliance.**

11.62.070 **Police duties—When interment delayed.**

11.62.080 **Police duties—When burial is in unauthorized place.**

11.62.100 **Permit and certificate for body brought into City.**

11.62.110 **Physician's certificate.**

11.62.120 **Only registered physicians to sign burial certificates.**

11.62.130 **Interment without certificate.**

11.62.140 **Permit required to establish crematory.**

11.62.160 **Permit to accompany body for cremation.**

11.62.170 **Request for cremation.**

11.62.180 Health Commissioner may refuse to grant permit.
11.62.190 Noncompliance.

Part III. Disinterment

11.62.210 Permit—Required.
11.62.220 Permit—When authority of Health Commissioner required.
11.62.230 Removal of corpses interred at quarantine station.
11.62.240 Disposition of disinterred bodies.
11.62.250 When disinterment required.

Part IV. Cemeteries

11.62.270 Permit required.
11.62.280 Legal cemeteries named.
11.62.290 Burial in unauthorized places.
11.62.300 Depth for burying.
11.62.310 Sexton.
11.62.320 Destroying or disfiguring.

Part V. Bureau of Vital Statistics

11.62.340 Established.
11.62.350 Fees.
11.62.360 Late birth registrations.
11.62.370 Depositing fees.

Part VI. Morgue

11.62.390 Established.
11.62.400 Officers and employees.
11.62.410 Duties of superintendent.
11.62.420 Unidentified bodies.
11.62.430 Daily reports.
11.62.440 Requisitions for supplies.
11.62.450 Expense account.

PART I. MOVING DEAD BODIES

City Counselor Ops.: 8769

RSMo:

RSMo 194.010 et seq. (2016) Transportation of dead bodies.

11.62.020 Removal without permit.

Every person who shall convey, remove, assist in conveying or removing the body of any deceased person, whether such person shall have died in the City or shall have been brought to the City after death, outside of the limits of the City, without first having obtained from the office of the Health Commissioner permission so to do, shall be deemed guilty of a misdemeanor; provided, that the provisions of this section shall have no application where bodies in course of transportation pass through St. Louis on their way from one point to another. (1948 C., Ch. 10, § 3; 1960 C., § 429.020; 1994 C., § 11.62.020.)

11.62.030 Certain dead bodies not to be brought to City.

It shall not be lawful for any person to bring into the City the body of any person who shall have died from cerebra-spinal meningitis, diphtheria, scarlet fever, typhoid or typhus fever, smallpox, Asiatic cholera, yellow fever or other malignant infectious or contagious disease, except upon the written authority of the Health Commissioner under such rules and regulations as he may prescribe. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 4; 1960 C., § 429.030; 1994 C., § 11.62.030.)

PART II. BURIALS AND CREMATORIES

City Counselor Ops.: 8769

11.62.050 Interment order—Compliance required.

Whenever the interment of the body of any deceased person in the limits of the City has, in the opinion of the Health Commissioner, been unnecessarily delayed, or where for sanitary reasons the interment of the body should take place forthwith, or where, in the opinion of the Health Commissioner, such delay may be injurious to the public health, or endanger the lives of the citizens of this City, it shall be his duty to issue an order directing that such body shall be interred forthwith. This order shall be directed to the relatives, friends or persons having in charge the body of such deceased person. If the relatives, friends or persons as aforesaid, fail or refuse to obey such order, then the Health Commissioner shall have the power to remove such body, and it shall be his duty to cause the body to be immediately interred in the public cemetery. (1948 C., Ch. 10, § 5; 1960 C., § 426.010; 1994 C., § 11.62.050.)

City Counselor Ops.: 9856

McQuillin:

24.269 Regulation of burial

11.62.060 Interment order—Noncompliance.

Any person failing or refusing to obey the order of the Health Commissioner in such cases as set forth in Section 11.62.050, or interfering with or resisting any of his officers or employees while engaged in the discharge of his orders shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 6; 1960 C., § 426.020; 1994 C., § 11.62.060.)

11.62.070 Police duties—When interment delayed.

It is hereby made the duty of the Police Department of the City, whenever they become apprised or have information that the interment of the body of any deceased person has been delayed beyond a reasonable length of time, to notify the Health Commissioner of such fact. It shall be the duty of the police to aid and assist him or any of his officers and employees while engaged in the discharge of their duty as prescribed in Section 11.62.050. (1948 C., Ch. 10, § 7(part); 1960 C., § 426.030; 1994 C., § 11.62.070.)

11.62.080 Police duties—When burial is in unauthorized place.

It shall be the duty of the police to arrest and prosecute any person who shall bury, or cause to be buried, the body of any deceased person in any place in the City not a burying ground, as prescribed in Section 11.62.270, unless a permit so to do shall have been issued and signed by the Health Commissioner. (1948 C., Ch. 10, § 7(part); 1960 C., § 426.040; 1994 C., § 11.62.080.)

11.62.100 Permit and certificate for body brought into City.

The Health Commissioner shall not issue a permit to bury the body of a person that died elsewhere, and has been brought within the City limits except upon the certificate of a physician given at the place of death. If no such certificate accompanies the body, it shall be the duty of the coroner of the City to pass on the case and make out and furnish the necessary certificates. (1948 C., Ch. 10, § 22; 1960 C., § 427.020; 1994 C., § 11.62.100.)

11.62.110 Physician's certificate.

Every dead body that is brought into the City must be accompanied by a physician's certificate stating the cause of death. Any party bringing any body into the City not accompanied by such certificate showing the cause of death shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 23; 1960 C., § 427.030; 1994 C., § 11.62.110.)

11.62.120 Only registered physicians to sign burial certificates.

It shall not be lawful for the Health Commissioner or his clerk to sign any burial certificate which has been signed by any other than a registered physician. (1948 C., Ch. 31, § 85; 1960 C., § 427.040; 1994 C., § 11.62.120.)

City Counselor Ops.: 10470

11.62.130 Interment without certificate.

If any overseer, sexton or other person having control of a graveyard shall permit any person to be interred in such graveyard without a certificate signed by a registered physician, and countersigned by the Health Commissioner or his clerk, he shall be deemed guilty of a misdemeanor. (1948 C., Ch. 31, § 86; 1960 C., § 427.050; 1994 C., § 11.62.130.)

City Counselor Ops.: 10470

11.62.140 Permit required to establish crematory.

It shall be unlawful for any person to erect or maintain any building in the City for the purpose of cremating or destroying by fire any human body, unless permission to do so has been first obtained from the Board of Public Service, nor shall any existing house, shed or structure be used, altered, changed, removed or repaired so as to establish, conduct or carry on a crematory without similar authority. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 15; 1960 C., § 430.010; 1994 C., § 11.62.140.)

McQuillin:

24.277 Crematories

11.62.160 Permit to accompany body for cremation.

No person in charge of or having control of any crematory shall receive at such crematory or allow to be cremated at such crematory the body of any person unless accompanied by a permit signed in writing by the Health Commissioner or his assistant and certified to by the Clerk of the Health Commissioner, giving permission to cremate such body, which permit shall set forth the name, age, color, sex, and the number of the death certificate relating to such person on file in this office. Any person in charge of or having control of any crematory who shall receive or cremate any body without the permission herewith described shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 17; 1960 C., § 430.030; 1994 C., § 11.62.160.)

11.62.170 Request for cremation.

Whenever the friends or relatives of any person who shall have died in this City shall desire to have the body of such person cremated by an association duly organized by law for the purpose of cremating dead human bodies, they shall first file in the office of the Health Commissioner certificates made out in duplicate and signed by the physician who attended the person in his last illness, and in case there has been no attending physician, such certificate must be signed by the coroner of the City. This certificate shall state the name, age, sex, color, place of birth when known, the exact locality and date of death, together with the name of the disease or cause of death from which such person died. Accompanying this certificate shall be a request in writing, signed by the friends or relatives, stating that they desire to have the body of the person named in the certificate cremated. When such certificate and request have been properly signed and delivered to the Health Commissioner, he shall issue a permit setting forth the facts and giving permission for the cremation of such body. (1948 C., Ch. 10, § 18; 1960 C., § 430.040; 1994 C., § 11.62.170.)

11.62.180 Health Commissioner may refuse to grant permit.

The Health Commissioner shall have the power to delay the issue of a permit for thirty-six hours or he may refuse to grant any permit for the cremation of any body if he is not perfectly satisfied that such body should be cremated. The Health Commissioner shall also have the right in all cases, if he so desires, to consult the coroner of the City before granting the permission to have any body cremated. (1948 C., Ch. 10, § 19; 1960 C., § 430.050; 1994 C., § 11.62.180.)

11.62.190 Noncompliance.

Every person who shall violate any of the provisions of Sections 11.62.140—11.62.190 shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 20; 1994 C., § 11.62.190.)

PART III. DISINTERMENT

City Counselor Ops.: 8769

11.62.210 Permit—Required.

No person shall remove any dead body, or the remains of any such body from any grave or tomb within the City, or disturb any grave or tomb within the City without first securing a permit from the Health Commissioner so to do.

No grave or tomb shall be opened from April 1 to October 1, except for the purpose of interring the dead, without special permission of the Health Commissioner; provided, however, dead bodies or the remains thereof may be removed from the graves and tombs upon the abandonment of any cemetery or other burial places within the City of St. Louis at any time during the year upon the securing of one permit for all such bodies disinterred or disentombed from the Health Commissioner so to do.

Upon the abandonment of such cemetery, the names of all bodies exhumed or disinterred shall be set forth in permit, as well as the name and address of the place where such bodies shall be interred or entombed. (1948 C., Ch. 10, § 10; 1960 C., § 428.010; 1994 C., § 11.62.210; Ord. No. 51384, § 1, 1962.)

11.62.220 Permit—When authority of Health Commissioner required.

No permit shall be granted for the disinterment of bodies of persons who have died from cholera, yellow fever or smallpox, except upon the written authority of the Health Commissioner, under such rules and regulations as he may prescribe, and then only after the expiration of one year from date of burial. (1948 C., Ch. 10, § 11; 1960 C., § 428.020; 1994 C., § 11.62.220.)

11.62.230 Removal of corpses interred at quarantine station.

Whenever a person shall be sent from the City to the City Quarantine Station affected with smallpox, yellow fever, cholera, or other malignant infectious or contagious disease, and such person dies there, the body of such person shall be buried in the burial ground at the quarantine station, unless never having been buried, the same has been prepared in such manner and with such disinfectants as the Health Commissioner may prescribe and enclosed in an hermetically sealed metallic casket and removed on permit issued by the Health Commissioner. If interred at the quarantine station as aforesaid the same shall not be removed except on special permit from the Health Commissioner for disinterment and removal. The person authorized thereby to disinter and remove the body shall strictly comply with all laws relating to the transportation of bodies of persons deceased from contagious or infectious diseases or the like. (1948 C., Ch. 10, § 12; 1960 C., § 428.030; 1994 C., § 11.62.230.)

11.62.240 Disposition of disinterred bodies.

In all cases where bodies are disinterred there shall be on hand, a new, tight, wooden box into which the coffin shall be immediately placed after it has been taken out of the ground. (1948 C., Ch. 10, § 13; 1960 C., § 428.040; 1994 C., § 11.62.240.)

RSMo:

RSMo 194.010, 194.020 (2016) Encasement of bodies for shipment.

11.62.250 When disinterment required.

If the body of any deceased person be found buried on any lot of ground in the City, the owner or agent of which cannot be found, it shall be lawful, and it is hereby made the duty of the Health Commissioner to cause such body to be disinterred and buried in the public burying grounds; provided, however, the provisions of this section shall have no application to the remains of deceased persons which have been interred prior to the passage of this part. (1948 C., Ch. 10, § 14; 1960 C., § 428.050; 1994 C., § 11.62.250.)

PART IV. CEMETERIES

City Counselor Ops.: 8769

McQuillin:

28.12 Authority of city to purchase burial grounds.

32.24 Condemnation of land for burial grounds

11.62.270 Permit required.

It shall be unlawful to bury deceased persons except in a cemetery or burying ground authorized by a permit issued by the Board of Public Service. The limits of any cemetery or burial ground shall not be extended without a permit for each extension. Any violation of this section shall be a misdemeanor. (1948 C., Ch. 10, § 26; 1960 C., § 432.010; 1994 C., § 11.62.270.)

11.62.280 Legal cemeteries named.

The following named cemeteries are recognized as legal and proper places of interment of persons who may die in the City or who may be brought to the City for burial: Bellefontaine, Calvary, First Evangelical, New Picker's, St. Marcus (New), St. Matthews, St.

Peter and St. Paul. (1948 C., Ch. 10, § 27; 1960 C., § 432.020; 1994 C., § 11.62.280; Ord. No. 57313, § 1, 1977; Ord. No. 56108, § 1, 1972; Ord. No. 51427, § 1, 1962.)

11.62.290 Burial in unauthorized places.

Any owner, his agent, tenant, or any other person who shall bury or permit to be buried the body of any deceased person on any lot of ground within the limits of the City, except those authorized as a cemetery, except by special permission of the Health Commissioner, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 28; 1960 C., § 432.030; 1994 C., § 11.62.290.)

11.62.300 Depth for burying.

No body of any deceased person shall be buried in any cemetery within the limits of the City at a less depth than six feet below the surface of the ground, provided, that the provisions of this section shall not be applied to cases where burial vaults or tombs have been or may be erected for the reception of deceased persons. (1948 C., Ch. 10, § 29; 1960 C., § 432.040; 1994 C., § 11.62.300.)

11.62.310 Sexton.

Every cemetery shall be in charge of a sexton or overseer, and the name of such sexton or overseer shall be certified to and recorded in the office of Health Commissioner, by the person owning or controlling such cemetery. (1948 C., Ch. 10, § 30; 1960 C., § 432.050; 1994 C., § 11.62.310.)

11.62.320 Destroying or disfiguring.

Every person who shall willfully destroy, disfigure or injure any wall, fence, ledge, monument, tombstone, tree or shrubbery around or within any cemetery, graveyard or burial ground, or shall use such a cemetery, graveyard or burial ground for any other purpose than a burying ground, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 10, § 31; 1960 C., § 432.060; 1994 C., § 11.62.320.)

PART V. BUREAU OF VITAL STATISTICS

RSMo:

RSMo 58.215 (2016) Coroner to file death certificates with registrar of vital statistics

RSMo 58.700 et seq. (2016) Medical examiner.

City Counselor Ops.: 8769

Cases:

Medical examiner appointed by Mayor of City of St. Louis replaces office or coroner. State ex rel. *McClellan v. Godfrey,* 519 S.W. 2d 4 (1975).

11.62.340 Established.

The Health Commissioner shall establish in the Division of Health a bureau of vital statistics to provide the citizens of the City of St. Louis with the vital statistics services as provided for in the state statutes. The bureau of vital statistics shall be open for business during the normal business hours of the City offices as provided by law. The vital statistics bureau shall be governed by the statutes of Missouri and ordinances of the City of St. Louis. (1948 C., Ch. 10, § 32; 1960 C., § 425.010; 1994 C., § 11.62.340; Ord. No. 55000, § 1(part), 1968.)

RSMo:

RSMo 193.005—193.325 (2016) Uniform vital statistics law.

McQuillin:

32.04, 32.37 Vital statistics regulation is within police power.

24.226 Power to make regulations on vital statistics.

11.62.350 Fees.

1. For each certified copy of a birth record:$10.00.

2. For each certified copy of a wallet-sized birth record:10.00.

3. A lamination fee for a wallet-sized birth record:2.00.

4. For each certified copy of a death record:10.00.

5. A nonrefundable fee for each 5-year period searched when the document is not found within the 5-year period searched. This fee is for requests submitted by mail as well as requests submitted in person over the counter:10.00. (1948 C., Ch. 10, § 33; 1960 C., § 425.020; 1994 C., § 11.62.350; Ord. No. 62683, § 2, 1992; Ord. No. 57978, § 1, 1980; Ord. No. 55000, § 1(part), 1968; Ord. No. 49564, § 1, 1959; Ord. No. 48139, § 1, 1956.)

11.62.360 Late birth registrations.

Whenever a person was born in the City and on record of the registration of his birth exists, such birth may be registered in the manner provided for such registration in the Missouri statutes, by filling out blank registration papers secured from the bureau of vital statistics of the Division of Health and filing same, together with a registration fee of two dollars. Such papers shall contain the affidavits, sworn to before a notary, of at least two persons, knowing the facts. The registrar may require further affidavits to establish the truth of the facts endeavored to be made of record and may withhold the filing of the registration papers until

his requirements are complied with. The registrar may make and enforce appropriate rules and regulations to carry out this section and to prevent fraud and deception. The bureau of vital statistics may charge a fee of two dollars for a certified copy of a birth certificate where a birth has been registered in accordance with the provisions of this section. (1948 C., Ch. 10, § 34; 1960 C., § 425.030; 1994 C., § 11.62.360; Ord. No. 55845(part), 1971.)

RSMo:

RSMo 193.285 (2016) Local registrars.

11.62.370 Depositing fees.

All fees collected by the bureau of vital statistics shall be deposited with the treasurer of the City of St. Louis to be credited to the general revenue fund. (1948 C., Ch. 10, § 35; 1960 C., § 425.040; 1994 C., § 11.62.370; Ord. No. 55000, § 1(part), 1968.)

PART VI. MORGUE

11.62.390 Established.

There is hereby established a municipal morgue for the temporary care of dead human bodies. The morgue shall be open at all hours of the day and night. (1948 C., Ch. 10, § 36; 1960 C., § 19.010; 1994 C., § 11.62.390.)

11.62.400 Officers and employees.

The coroner is hereby authorized and directed to appoint a superintendent for the municipal morgue, an assistant superintendent and two porters, whose duties shall be those indicated by their respective titles. (1948 C., Ch. 18, § 37; 1960 C., § 19.020; 1994 C., § 11.62.400.)

11.62.410 Duties of superintendent.

The Superintendent, and in his absence the Assistant Superintendent, shall exercise immediate controls and supervision of the municipal morgue building and all property therein contained. He shall keep a record book in which anyone may record the name of a missing person and description of such person and clothing, together with the address to which such information may be sent respecting such missing person. (1948 C., Ch. 10, § 38; 1960 C., § 19.030; 1994 C., § 11.62.410.)

11.62.420 Unidentified bodies.

Upon the reception of an unidentified dead body the Coroner shall be notified as soon as practicable and a full description of such body and of the clothing and articles found thereon shall be at once prepared by the Superintendent or, in his absence, by the Assistant Superintendent. The clothing and all articles found on such body and the above-mentioned description thereof shall be so arranged and placed in the morgue as to be open to view for inspection and identification by the public. Any person having a real and legitimate reason for inspecting any unidentified dead body may be allowed to view the same. (1948 C., Ch. 10, § 39; 1960 C., § 19.040; 1994 C., § 11.62.420.)

11.62.430 Daily reports.

The Superintendent shall daily make a report to the Coroner and also to the Health Commissioner showing the date of reception of each unidentified body, with a brief description thereof, stating whether male or female and white or colored, probable age, mode of death and place where found. He shall also file a report concerning identified bodies giving the following details:

A. Date of reception;

B. Name, age, profession or business, and residence;

C. Cause of death;

D. Hour and date of death;

E. Place of death;

F. By whom removed;

G. Name of undertaker;

H. Place of burial. (1948 C., Ch. 10, § 40; 1960 C., § 19.050; 1994 C., § 11.62.430.)

11.62.440 Requisitions for supplies.

The Coroner shall make requisition on the Supply Commissioner for all articles needed for the municipal morgue. (1948 C., Ch. 10, § 41; 1960 C., § 19.060; 1994 C., § 11.62.440.)

11.62.450 Expense account.

The Coroner shall cause to be kept in suitable books a full and correct account of all expenses of the municipal morgue. Before any money is paid, the accounts shall be examined and approved by the Mayor. (1948 C., Ch. 10, § 42; 1960 C., § 19.070; 1994 C., § 11.62.450.)

Chapter 11.64

HAZARDOUS SUBSTANCE CLEANUP

Sections:

11.64.010 Citation
11.64.020 Definitions.
11.64.040 Legislative findings.

11.64.050 Reporting of hazardous substance release.

11.64.060 Initial response to reported release of hazardous substance.

11.64.070 Cleanup of hazardous substance release requiring immediate action to protect public health or safety.

11.64.080 Health Commissioner to investigate reports of hazardous substance release.

11.64.090 Powers of Health Commissioner.

11.64.100 Restrictions on sites posted by Health Commissioner.

11.64.110 Liability for cleanup performed or contracted for Commissioner or Fire Enforcement Officer.

11.64.120 Authority to prevent recurrence of hazardous substance emergency.

11.64.130 Hazardous Materials Program Manager—Duties.

11.64.140 Enforcement.

11.64.010 Citation

This chapter shall be known and may be cited as the "Hazardous Substance Remedial Action and Liability Ordinance of the City of St. Louis" and shall be codified. (1994 C., § 11.64.010; Ord. No. 62274, § 2, 1991.)

11.64.020 Definitions.

For purposes of this chapter, the terms herein used shall have the following meanings, unless the context clearly indicates otherwise:

A. "Cleanup" means all actions necessary to contain, collect, control, identify, analyze, clean up, treat, disperse, remove, or dispose of a hazardous substance or to protect the public from a hazardous substance release.

B. "Cleanup costs" means all costs incurred by the City of St. Louis, its agents or any person participating with the approval of, or under contract with, either the Health Commissioner or a Fire Enforcement Officer in the prevention or mitigation of damages from a hazardous substance emergency or the cleanup of a release of a hazardous substance.

C. "Commissioner" means the Health Commissioner of the City of St. Louis or an employee of the Health Commissioner who has been specifically designated by the Health Commissioner to enforce and implement the provisions of this chapter.

D. "Department" means the St. Louis City Fire Department.

E. "Fire Enforcement Officer" means an employee of the Fire Department of the City of St. Louis who has been designated by the Chief of the Fire Department to investigate reported or potential releases of hazardous substances and to take other actions with regard to such releases as authorized by this chapter. As used herein, such term shall include the duly appointed Fire Marshal of the City of St. Louis.

F. "Hazardous substance" means any substance or mixture of substances, whether in solid, gaseous, liquid or mixed form, that presents a danger to the public health or safety or to the environment, including, but not limited to:

1. Any hazardous waste identified or listed by the Missouri Department of Natural Resources pursuant to RSMo 260.350 through 260.433;

2. Any element, compound, mixture, solution or substance designated by the Environmental Protection Agency as hazardous pursuant to Sections 101(14) and 102 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended (hereinafter referred to as "CERCLA");

3. Any hazardous material designated by the Secretary of the United States Department of Transportation under the Hazardous Materials Transportation Act;

4. Crude oil or any fraction thereof, natural gas, natural gas liquids, liquefied natural gas, synthetic gas usable for fuel, or mixtures of natural gas and such synthetic gas;

5. Any radioactive materials, wastes, emissions or discharges, except to the extent that regulation of such substances hereunder would conflict with the laws of either the federal government or the State of Missouri.

G. "Hazardous substance emergency" means:

1. Any release of a hazardous substance or substances in quantities equal to or in excess of the limits established therefor pursuant to Sections 101(14) or 102 of CERCLA;

2. Any release of a hazardous substance or substances which (a) the Commissioner has determined may present a danger to public health or safety or to the environment, if cleanup is not undertaken with regard thereto, or (b) which a Fire Enforcement Officer has determined immediate remedial action is necessary to protect public health and/or safety;

3. Any release of crude oil or any fraction thereof, natural gas, natural gas liquids, liquefied natural gas, synthetic gas useable for fuel, or mixtures of natural gas and such synthetic gas, in amounts in excess of fifty gallons for liquids or three hundred cubic feet for gases;

4. Any release of a hazardous waste which is reportable under RSMo 260.350 through 260.433i;

5. Any release of a hazardous substance for which immediate notification is required pursuant to Part 171 of Title 49 of the Code of Federal Regulations;

6. Any release of radioactive materials, wastes, emissions or discharges, except to the extent that treatment of such release as a Hazardous Substance Emergency hereunder would conflict with the laws of either the federal government or the State of Missouri.

H. "Level I Hazardous Substance Emergency" means any Hazardous Substance Emergency for which a Fire Enforcement Officer has determined that immediate remedial action is necessary to protect public health and/or safety.

I. "Level II Hazardous Substance Emergency" means all Hazardous Substance Emergencies which do not constitute a Level I Hazardous Substance Emergency.

J. "Person" means any individual, partnership, copartnership, firm, company, public or private corporation, association, joint stock company, trust, estate, political subdivision or any other legal entity recognized by law.

K. "Person having control over a hazardous substance" means any person producing, handling, storing, transporting, refining or disposing of a hazardous substance at the time when a hazardous substance release occurs, or any person(s) owning the real estate on which a hazardous substance release occurs, whether or not any such person has an ownership interest in the hazardous substance which has been released.

L. "Release" means any threatened or actual emission, discharge, spillage, leakage, pumping, pouring, emptying or dumping of a substance into or onto land, water, or the sewer system, within the corporate limits of the City or into the air above the area contained within the City's corporate limits, including the abandonment or discarding of barrels, cylinders, or other containers or closed receptacles containing any hazardous substance, unless: (1) done in compliance with the conditions of a federal, state, City or Metropolitan Sewer District permit, (2) the substance is confined, and is expected to remain confined, to property owned, leased or otherwise controlled by the person having control over the substance, which property is properly fenced and secured to prevent ready access by the public to said property, or (3) in the case of pesticides, if application is made in accordance with the product label.

M. "Site" means any premises, building, field, lot, street, highway, alley or similar piece of property or real estate, whether publicly- or privately-owned, including the air above or within it, the earth on and below it, and any water or liquid on or below it. (1994 C., § 11.64.020; Ord. No. 62274, § 3, 1991.)

11.64.040 Legislative findings.

The Board of Aldermen of the City hereby makes the following findings:

A. A wide range of hazardous substances are stored, produced, and used within, and transported through, the boundaries of the City.

B. The storage, production, use and transportation of such hazardous substances within the City presents a potential for release of such substances into the environment. Specifically, the potential exists for release of hazardous substances into the air, ground, ground water and sewer systems within the boundaries of the City.

C. The release of a hazardous substance or substances into the environment presents not only a potential for contamination and pollution of the environment, but also may constitute a hazard to human life, health, safety and welfare. Due to the dangers presented by certain releases of hazardous substances into the environment, such releases may constitute an emergency situation requiring immediate remedial action.

D. The Board of Aldermen specifically finds and declares that the release of a hazardous substance into the environment constitutes a nuisance, subject to abatement by the Health Commissioner pursuant to the authority granted said Commissioner by Article XIII, Section 14-C(c) of the Charter of the City.

E. In many instances, private businesses and individuals who have control over one or more hazardous substances do not have the capacity and/or resources to take necessary remedial action, or to undertake such remedial action on a timely basis, to cleanup after the release of a hazardous substance into the environment. Thus, it may become necessary, from time to time, for

the City to undertake or contract for cleanup of hazardous substances following a release of such substances into the environment.

F. Remedial measures necessary for cleanup of a hazardous substance release are costly. Where cleanup actions are undertaken by the Fire Department or Health Division, such actions will most often involve use of costly equipment, such as personal protection clothing, which cannot be reused, adding greatly to the expense of cleanup operations.

G. In order to assure that the City has the necessary resources to protect its citizenry in the event of a Hazardous Substance Emergency, it is imperative that the City be able to recover the costs incurred by it in cleaning up the release of a hazardous substance from the person(s) having control of such substance at the time of the release. (1994 C., § 11.64.040; Ord. No. 62274, § 4, 1991.)

11.64.050 Reporting of hazardous substance release.

Any person having control of a hazardous substance at the time that a release of such substance occurs shall immediately report such release to the Fire Department, by calling the 911 emergency number. A written follow up report shall be made to the Chief of the Fire Department, or his duly authorized representative, within five days of the release. The Fire Department shall provide the Health Commissioner and the Hazardous Materials Program Manager with a copy of such report within two working days of receipt of the follow up report. Such report shall specify:

A. The person(s) having control over the hazardous substance(s) at the time of a release;

B. The name of the substance(s) released;

C. The location where the release occurred;

D. The medium(s) into which the substance(s) were released;

E. The amount of substances released;

F. The known health, safety and environmental risks associated with the substance(s) which were released;

G. The actions taken to cleanup the release;

H. Any further actions which the person(s) having control of the hazardous substance(s) at the time of the release intends to take to cleanup or remedy the effect of the release;

I. The name of any persons other than the person(s) having control of the hazardous substance(s) at the time of the release who assisted in cleanup of such substance(s); and

J. The name of a person or persons who can be contacted for further information regarding the release.

A copy of the material safety data sheet for each hazardous substance which has been released into the environment shall be attached to this report. The requirements of this section are intended as a supplement to, and not a replacement for, the requirements of any federal or state law or regulation requiring reporting of a release of a hazardous substance. Reporting of a release of a hazardous substance pursuant to the rules and regulations of the St. Louis Local Emergency Planning Committee, promulgated under the authority of Title III of the federal Superfund Amendments and Reauthorization Act of 1986, shall constitute compliance with this section. Failure to comply with the requirements of this section shall be a violation punishable by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day following a release of a hazardous substance during which such release goes unreported shall constitute a separate violation. Each day for which no follow up report of a release is filed, after the fifth day following such release, shall constitute a separate violation. (1994 C., § 11.64.050; Ord. No. 62274, § 5, 1991.)

11.64.060 Initial response to reported release of hazardous substance.

Whenever a release of a hazardous substance has been reported to the Department pursuant to the provisions of Section 11.64.050, or the Department otherwise becomes aware of a potential release, a Fire Enforcement Officer shall immediately investigate such report to determine: (A) whether a release has occurred, (B) the extent and quantity of the release, and (C) whether, if a release has occurred, the release constitutes a Hazardous Substance Emergency. Additionally, he shall take whatever action he deems to be immediately necessary to protect public health and safety. If the Fire Enforcement Officer making an investigation of a release determines that immediate cleanup is necessary to protect the public health and safety, he shall declare a Level I Hazardous Substance Emergency. Such declaration may be oral; however,

within forty-eight (48) hours of the declaration of an emergency by a Fire Enforcement Officer, a follow up written notice of such declaration shall either be personally served upon, or sent by registered first class mail to, the person having control of the hazardous substance. Such follow-up notice shall designate the boundaries of the site for which a Level I Hazardous Substance Emergency was declared. Whenever the Fire Department receives a report of a release of a hazardous substance, or upon otherwise becoming aware of a potential release, the Fire Department shall, within forty-eight (48) hours of the conclusion of its investigation, inform the Commissioner and the Hazardous Materials Program Manager of the results thereof. (1994 C., § 11.64.060; Ord. No. 62274, § 6, 1991.)

11.64.070 Cleanup of hazardous substance release requiring immediate action to protect public health or safety.

Where a Fire Enforcement Officer has declared a Level I Hazardous Substance Emergency, the Fire Enforcement Officer may proceed to immediately take or order all actions necessary to cleanup the hazardous substance(s) which have been released, including the hiring of a private response contractor(s), unless the person(s) having control of the hazardous substance(s) at the time of the release is immediately willing and capable of undertaking cleanup of the substance. If a Level I Hazardous Substance Emergency has been declared and the person(s) having control of such substance(s) at the time of the release volunteers to undertake cleanup of such substance(s), the Fire Enforcement Officer on the scene shall have final authority to determine whether such person(s) has the capability to immediately undertake appropriate action to cleanup the release. If he determines at any time that the person(s) having control of the hazardous substance(s) is incapable of properly cleaning up the release, or is not properly conducting cleanup activities, the Fire Enforcement Officer shall order such person(s) not to engage in or to cease cleanup activities and the Fire Enforcement Officer shall then immediately proceed to take or order all actions necessary for cleanup of the release. The authority of a Fire Enforcement Officer under this section to take or order cleanup actions shall be limited to actions necessary to alleviate immediate danger to public health or safety and activity reasonably associated or related therewith. Upon completion of cleanup activities necessary to alleviate immediate danger to public health and/or safety at the site of a release, the Fire Enforcement Officer shall rescind his order declaring a Level I Hazardous Substance Emergency at such site. He shall immediately notify the Health Commissioner of such action. (1994 C., § 11.64.070; Ord. No. 62274, § 7, 1991.)

11.64.080 Health Commissioner to investigate reports of hazardous substance release.

Upon being informed of a hazardous substance release, or upon otherwise becoming aware of a release or potential release, which has not been declared a Level I Hazardous Substance Emergency by the Fire Department, the Health Commissioner shall immediately cause an investigation of such release or potential release to be made by Fire Department and/or Health Division personnel for purposes of determining: (A) whether a release has occurred, (B) the extent and quantity of the release, and (C) whether, if a release has occurred, the release constitutes a Hazardous Substance Emergency. The Health Commissioner shall also cause investigation of all sites for which a Level I Hazardous Substance Emergency was rescinded, following cleanup actions, to determine whether a Level II Hazardous Substance Emergency exists at such site. (1994 C., § 11.64.080; Ord. No. 62274, § 8, 1991.)

11.64.090 Powers of Health Commissioner.

A. If, after investigation of a release by either the Fire Department or Health Division personnel, it is determined that such release constitutes a Level II Hazardous Substance Emergency, then the Health Commissioner shall issue an order declaring a Level II Hazardous Substance Emergency. Such order shall specifically designate the release requiring declaration of a Level II Hazardous Substance Emergency as a nuisance. The Commissioner's order shall designate the boundaries of the site for which such Hazardous Substance Emergency exists. The Commissioner shall cause notice of such Level II Hazardous Substance Emergency to be either personally served, or sent by registered mail, to the owner(s) and occupant(s) of the site and to the person(s) having control of the hazardous substance(s) at the time of the release. The Commissioner shall also officially notify the Fire Department, the St. Louis Metropolitan Police Department, the Building Commissioner of the City of St. Louis, the Missouri Department of Natural Resources, the Environmental Protection Agency, any other governmental agency which the Commissioner determines should be

notified, and utility companies providing service to the site. Further, notice of such written follow-up order is to be given to the parties, and in the manner, specified above.

B. If the Commissioner has declared a release to be a Level II Hazardous Substance Emergency, he shall, in consultation with other City agencies and appropriate state and federal agencies, issue an order to the person(s) having control of the hazardous substance(s) at the time of the release which resulted in declaration of the emergency requiring such person(s) to take any actions necessary to cleanup the release. As part of said order, the Commissioner may require the person(s) having control of the hazardous substance(s) at the time of the release to prepare a plan for cleanup of the release and to provide a written copy of said plan to the Commissioner for approval. The order shall establish a timetable for presentation of a cleanup plan and for completion of cleanup of the site where the release occurred.

C. The Commissioner, upon declaration of a Hazardous Substance Emergency, has the authority and power to conspicuously post a notice on the site designated in the order which declared the emergency, which notice shall substantially read as follows:

DANGER!

HAZARDOUS SUBSTANCES PRESENT.

AREA POSTED BY ST. LOUIS HEALTH COMMISSIONER, UNAUTHORIZED PERSONNEL KEEP OUT.

For Information Contact:

The St. Louis Health Commissioner

(314) 658-1054

D. Where the Commissioner has determined that it is in the best interest of public health and/or safety to post a notice pursuant to the provisions of Subsection C of this section, the Commissioner shall also cause to be recorded with the Recorder of Deeds, for the site for which such notice is posted, a notice stating that the site is subject to the restrictions set forth in Section 11.64.100 of this chapter.

E. Upon completion of all work necessary on a site to comply with a cleanup order issued by the Commissioner, the notice posted pursuant to Subsection C of this section shall be removed from the site, and notice of such action shall be given to all persons previously provided with notice concerning said site under either Subsection A or C of this section. Additionally, the Commissioner shall cause to be recorded with the Recorder of Deeds a notice stating that the site restrictions set forth in Section 11.64.100 have been rescinded with regard to said site.

F. If a person who had control over a hazardous substance at the time a release occurs fails to comply with an order issued by the Commissioner pursuant to Subsection B of this section, or if such person cannot be contacted within ten (10) days of a release which has resulted in declaration of a Level II Hazardous Substance Emergency, then the Commissioner may undertake cleanup of the hazardous substance(s) which have been released and/or contract with one or more private contractors for cleanup of such hazardous substances. All such contracts must be executed by the Commissioner and countersigned by the Comptroller and City Counselor. This subsection in no way shall restrict the authority of the Fire Chief or of a Fire Enforcement Officer to undertake, or contract for, cleanup of a release which presents an immediate threat to public health or safety, pursuant to the provisions of Section 11.64.070.

G. In the event that a Level II Hazardous Substance Emergency has been declared as the result of the discovery of any abandoned or discarded barrels, cylinders, or other containers or closed receptacles containing any hazardous substance, the Commissioner may immediately undertake or contract for cleanup actions with regard to said barrels, cylinders, containers or receptacles, regardless of the presence of an immediate danger to the public health and/or safety.

H. It shall be a violation of this chapter for any person to fail to comply with the provisions of an order issued by the Commissioner pursuant to Subsection B of this section. Such violation shall be punishable by a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day during which a person fails to comply with an order issued by the Commissioner pursuant to Subsection B of this section shall constitute a separate violation. It shall be a defense to such violation that the failure to comply with the Commissioner's order was due to an act of God or an act of war, or was due to the actions of a third party

not an agent or employee of the person to whom the Commissioner's order was directed. It shall also be a defense to said violation that the person to whom the order was issued was not a person having control of the hazardous substance at the time the release occurred which led to the declaration of a Hazardous Substance Emergency.

I. It shall be a violation for any person to remove, vandalize, or mutilate, or otherwise intentionally cause to be unreadable, a notice posted by the Commissioner pursuant to this section. Such violation shall be punishable by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. (1994 C., § 11.64.090; Ord. No. 62274, § 9, 1991.)

11.64.100 Restrictions on sites posted by Health Commissioner.

It shall be unlawful for any person to enter any site which has been posted by the Health Commissioner pursuant to Section 11.64.090.C or for any persons to excavate, dig, construct, renovate or otherwise alter the physical condition of the surface, terrain, topography, subsurface, subterraneous material or any structures at said site, or to remove any material from said site, without first obtaining written permission therefor from either the Commissioner, the Missouri Department of Natural Resources or the United States Environmental Protection Agency. (1994 C., § 11.64.100; Ord. No. 62274, § 10, 1991.)

11.64.110 Liability for cleanup performed or contracted for Commissioner or Fire Enforcement Officer.

If a Fire Enforcement Officer has, pursuant to the provisions of Section 11.64.070, taken or ordered actions necessary to cleanup a hazardous substance(s) involved in a Hazardous Substance Emergency, or if the Commissioner has undertaken to cleanup a hazardous substance release pursuant to the provisions of either Section 11.64.090.F or G, the person(s) having control over the hazardous substance(s) at the time of the release which resulted in declaration of the emergency shall be strictly liable to the City for the reasonable costs of cleanup incurred by the City pursuant to the provisions of this chapter, including, but not limited to, amounts paid to private contractors to assist in the cleanup of the released hazardous substance(s), except that the City shall not be entitled to reimbursement for salary or wages paid to City employees involved in the cleanup other than overtime wages paid to said employees as a result of their participation in cleanup activities. (1994 C., § 11.64.110; Ord. No. 62274, § 11, 1991.)

11.64.120 Authority to prevent recurrence of hazardous substance emergency.

A Fire Enforcement Officer, in consultation with other Fire Department personnel, the Commissioner, the Building Commissioner, any appropriate federal or state agency, and/or private person(s) having expertise in the handling of hazardous substances, shall have authority to issue an order requiring a person having control over a hazardous substance involved in a Hazardous Substance Emergency to take such corrective actions as may be reasonably required to prevent a recurrence of such hazardous substance emergencies. Failure to comply with an order issued pursuant to the provisions of this section shall be a violation punishable by a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day that a person fails to comply with an order issued pursuant to this section shall constitute a separate violation. (1994 C., § 11.64.120; Ord. No. 62274, § 12, 1991.)

11.64.130 Hazardous Materials Program Manager—Duties.

A. Whenever a Hazardous Substance Emergency is declared, the Fire Enforcement Officer making the declaration, or the Health Commissioner, if he has declared the emergency, shall make an oral report thereof to the Hazardous Materials Program Manager as soon as is practicable. In no event shall such oral report be made later than twenty (20) hours after the declaration of a Hazardous Substance Emergency.

B. Additionally, the Fire Department and the Commissioner shall provide the Hazardous Materials Program Manager with: a copy of all orders issued by them concerning any hazardous substance emergency, any documents received by them from persons having control of a hazardous substance(s) involved in a Hazardous Substance Emergency which concerns such emergency, and any documents received by them from other governmental agencies which relate to a Hazardous Substance Emergency.

C. The Hazardous Materials Program Manager shall keep records concerning all sites which have been

involved in a Hazardous Substance Emergency. These records shall be kept according to street address. Where there is not a street address for a site involved in a Hazardous Substance Emergency, records concerning such emergency shall be kept by City block number or by other method calculated to allow a person examining such records to determine the location of the site of such emergency.

D. If the Fire Department or Commissioner expends funds for cleanup activities, for which another is or may be liable to make reimbursement to the City pursuant to the provisions of Section 11.64.110, the Hazardous Materials Program Manager shall be provided all information necessary for him to pursue reimbursement of the funds so expended. The Hazardous Materials Program Manager shall then prepare and mail, by registered mail, an itemized invoice to the person(s) who had control of the hazardous substance(s) at the time the release in question occurred, requiring reimbursement to be made to the City within thirty (30) days of the date of the invoice. If no reimbursement is made, and no appeal contesting payment of such costs is filed with the Director of the Missouri Department of Natural Resources (pursuant to the provisions of RSMo 260.546.2), within thirty (30) days from the date of the invoice, the debt shall be turned over to the City Counselor for collection. If appeal of an invoice is made to the Director of the Department of Natural Resources, payment of any costs found reasonable and appropriate by the director shall be made within thirty (30) days of any such decision. If reimbursement is not made within such time, the debt shall be turned over to the City Counselor for collection. Any monies collected pursuant to this section shall be paid into the General Revenue Fund of the City.

E. The Hazardous Materials Program Manager shall determine whether the City is entitled to reimbursement from the state and/or federal government for all or part of the funds expended by it in response to a Hazardous Substance Emergency and, wherever appropriate, shall take all actions necessary to apply for reimbursement. All monies received by the City as reimbursement for funds expended by it in response to a Hazardous Substance Emergency shall be paid into the General Revenue Fund of the City. (1994 C., § 11.64.130; Ord. No. 62274, § 13, 1991.)

11.64.140 Enforcement.

Enforcement of the provisions of this chapter by the Commissioner and/or Fire Department is intended to supplement and be subordinate to enforcement by appropriate state and federal officials of the provisions of state and federal laws and regulations concerning the release of hazardous substances into the environment. To the extent possible, the Commissioner and the Fire Department shall coordinate actions taken pursuant to the provisions of this chapter, and shall consult with regard to such actions, with the United States Environmental Protection Agency, the Missouri Department of Natural Resources, and/or other appropriate state or federal agencies, pursuant to the provisions of applicable statutes or regulations. (1994 C., § 11.64.140; Ord. No. 62274, § 14, 1991.)

Chapter 11.66

OPEN STORAGE OF SAND AND GRAVEL

Sections:

11.66.010	**Permit—Required.**
11.66.020	**Permit—Effective period—Renewal.**
11.66.030	**Fencing requirements—Gates.**
11.66.040	**Fencing requirements—Flood wall exception.**
11.66.050	**Penalty for violation.**

11.66.010 Permit—Required.

The owner or occupant of any premises shall not permit sand, gravel, other similar aggregates having a particle size of less than one-half-inch diameter to be openly stored or piled at a height of twenty feet or more or loose materials if loaded out by the use of a conveyor to be openly stored or openly piled at a height greater than ten (10) feet, without first obtaining a permit from the Board of Public Service. The application for a permit shall contain a description and plat of the land proposed to be used for such open storage or piling and such other information the Board may reasonably require. Permits shall be issued by the Board of Public Service and shall contain such conditions and terms which the Board deems necessary to protect the public health and safety. (1994 C., § 11.66.010; Ord. No. 59481, § 1, 1985.)

11.66.020 Permit—Effective period—Renewal.

Permits required by the chapter shall be effective for one year and shall be renewed annually, and the initial permit must be applied for to the Board of Public Service within thirty days after the effective date of this

chapter. (1994 C., § 11.66.020; Ord. No. 59481, § 3, 1985.)

Editor's Note:

Ordinance 59481 was approved July 5, 1985.

11.66.030 Fencing requirements—Gates.

In addition to the other conditions and terms that the Board of Public Service may deem necessary to protect the public health and safety, all such premises, or those portions immediately adjacent to where such sand, gravel, similar aggregates, or loose materials are openly stored or openly piled, shall be enclosed by a chain-link fence at least eight (8) feet in height with a minimum of three strand barb wire attached at the top, unless the premises is fully enclosed by a fence prior to the effective date of this chapter. Any gates for any fence must be locked except when opened for authorized ingress and egress from the premises. At such times when the gates are open the opening shall be protected from unauthorized entry by an attendant; or the gates shall have an automatic gate release system that activates from the exterior by authorized personnel, but prevents unauthorized entry. (1994 C., § 11.66.030; Ord. No. 59481, § 2, 1985.)

11.66.040 Fencing requirements—Flood wall exception.

The fencing requirement of this chapter shall not apply to any premises that is located directly east of where the flood wall is located. (1994 C., § 11.66.040; Ord. No. 59481, § 4, 1985.)

11.66.050 Penalty for violation.

Any owner, licensee or other person, firm, corporation or partnership convicted of violating this chapter shall be punished by a fine of not less than one hundred ($100.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day that any violation shall continue shall constitute a separate and distinct offense. (1994 C., § 11.66.050; Ord. No. 59481, § 5, 1985.)

Chapter 11.68

COMMERCIAL BLOOD VENDOR REGISTRATION

Sections:

11.68.010 Title.

11.68.020 Purpose.

11.68.030 Guidelines adopted.

11.68.040 Definitions.

11.68.050 Blood or plasma vendor registration-identification card.

11.68.060 Recordkeeping.

11.68.070 Breath analysis.

11.68.080 Reporting of communicable disease.

11.68.090 Prohibited acts.

11.68.100 Enforcement and inspection.

11.68.110 Denial, suspension or revocation of registration-identification card.

11.68.120 Appeals.

11.68.130 Penalty for violation.

11.68.010 Title.

This chapter shall be known and may be cited and referred to as the "Commercial Blood or Plasma Vendor Registration-Identification Ordinance." (1994 C., § 11.68.010; Ord. No. 59751, § 1, 1986.)

11.68.020 Purpose.

The purpose of this chapter is to provide a system for the registration and identification of and the reporting of medical data applicable to commercial blood or plasma vendors as being in the common interest of the health of the people of the City. (1994 C., § 11.68.020; Ord. No. 59751, § 2, 1986.)

11.68.030 Guidelines adopted.

Parts 600, 601, 606, 607, 610, 640, as amended (including the relevant guidelines and memoranda published by the Food and Drug Administration pursuant to such parts) Title 21 of the Code of Federal Regulations governing standards for human blood and blood products, a copy of which is filed of record with the Register of the City and set forth in Appendix A hereof, is hereby adopted by the City and incorporated herein by reference as part of the chapter and it shall become the law of this City in the same manner as if it were fully set forth herein. If there is a conflict between the federal regulations and the provisions of this chapter, the provisions of this chapter shall prevail. (1994 C., § 11.68.030; Ord. No. 59751, § 3, 1986.)

11.68.040 Definitions.

For the purposes of this chapter, the following words, terms and phrases shall have the following respective meanings, unless otherwise specifically provided:

A. "Blood collection facility" is defined as any facility, laboratory, or place of business where commercial blood vendors participate in the whole blood extraction process.

B. "Commercial blood vendor" is defined as an individual who sells, barter, or exchanges for monetary consideration, whole blood.

C. "Commercial plasma vendor" is defined as an individual who sells, barters, or exchanges for monetary consideration his or her blood plasma through the plasmapheresis process.

D. "Division" is defined as the St. Louis City Health Division.

E. "Health Commissioner" shall mean the Health Commissioner of the City or his designated representative in the Health Division of the City.

F. "Plasmapheresis" is defined as the procedure whereby whole blood is removed from a commercial plasma vendor by venipuncture (or phlebotomy), the plasma is separated therefrom, and the blood cells returned to the plasma vendor.

G. "Plasmapheresis facility" is defined as any facility, laboratory, or place of business where commercial plasma vendors participate in the plasmapheresis process. (1994 C., § 11.68.040; Ord. No. 59751, § 4, 1986.)

11.68.050 Blood or plasma vendor registration-identification card.

All commercial blood collection facilities and plasmapheresis facilities doing business within the City shall prepare a blood or plasma vendor registration-identification card for each commercial blood vendor or plasma vendor. The card shall contain identifying information, as shall be required by the Division, including a photograph and number of the vendor. The card shall identify the facility which prepared the card. Only one (1) card and one (1) number shall be issued to each vendor. The registration-identification card shall be good for one (1) blood collection facility or one (1) plasmapheresis facility only. A copy of the registration-identification card shall be filed with the Division. (1994 C., § 11.68.050; Ord. No. 59751, § 5, 1986.)

11.68.060 Recordkeeping.

A. No blood collection facility or plasmapheresis facility within the City may remove whole blood or perform the plasmapheresis process on a commercial blood or plasma vendor until said vendor presents the facility with a valid vendor registration-identification card issued as required by Section 11.68.050. The blood collection or plasmapheresis facility shall keep accurate records of each whole blood extraction or plasmapheresis procedure performed by it, which shall include:

1. The date of the whole blood extraction or plasmapheresis procedure;

2. The name, address, age, weight, height and sex of the vendor;

3. A photograph and identification number of the vendor;

4. The results of breath analysis of the vendor as required by Section 11.68.070;

5. The amount of whole blood, not including anticoagulant, removed from the vendor during the plasmapheresis procedure;

6. The proportion of the blood cells successfully returned to the vendor at the time of each plasmapheresis procedure;

7. The results of testing for hepatitis;

8. The results of testing for HTLV-III antibody;

9. The current hematocrit value;

10. Any other identifying information as the Division may deem necessary.

B. All said facilities within the City shall provide access to the aforementioned records to the Division during all normal hours of operation for purpose of determining compliance with all applicable laws and regulations.

C. Prior to beginning the plasmapheresis procedure upon any commercial blood or plasma vendor, the plasmapheresis facility shall ascertain that said vendor has not participated in the plasmapheresis procedure in excess of the amounts listed below within the times indicated:

1. The amount of whole blood, not including anticoagulant, removed from a vendor during the plasmapheresis procedure in any forty-eight (48) hour period shall not exceed one thousand (1,000) milliliters unless the vendor's weight is one hundred seventy-five (175) pounds or greater, in which case the amount of whole blood, not including anticoagulant removed from

the vendor during the plasmapheresis procedure, in any forty-eight (48) hour period shall not exceed one thousand two hundred (1,200) milliliters.

2. The amount of whole blood, not including anticoagulant, removed from a vendor during the plasmapheresis procedure, within a seven (7) day period shall not exceed two thousand (2,000) milliliters, unless the vendor's weight is one hundred seventy-five (175) pounds or greater, in which case the amount of whole blood, not including anticoagulant, removed from the vendor during the plasmapheresis procedure, within a seven (7) day period shall not exceed two thousand four hundred (2,400) milliliters.

3. During the plasmapheresis procedure, no more than five hundred (500) milliliters of whole blood shall be removed from a vendor at one time unless the vendor's weight is one hundred seventy-five (175) pounds or greater, in which case no more than six hundred (600) milliliters of whole blood shall be removed from the vendor at one time.

D. No plasmapheresis facility within the City may perform the plasmapheresis process on a commercial plasma vendor until said vendor has been examined and issued a certificate of good health as required by the regulations of the Food and Drug Administration (FDA), of the United States Department of Health and Human Services.

E. Prior to beginning the whole blood extraction process upon any commercial blood vendor, the facility shall ascertain that said vendor has not participated in the whole blood extraction procedure in excess of the amounts listed below within the time indicated:

1. The amount of whole blood, not including anticoagulant, removed from a vendor during the whole blood extraction procedure in any eight (8) week period shall not exceed four hundred fifty (450) milliliters, providing that the vendor's weight is one hundred ten (110) pounds or greater.

F. No whole blood extraction facility within the City may extract whole blood from a commercial blood vendor until said vendor has been examined and issued a certificate of good health as required by the regulations of the Food and Drug Administration (FDA), of the United States Department of Health and Human Services.

G. The Division shall keep all records in a manner which protect the rights of individuals to the confidentiality of their medical records. The disclosure of the identity of, or other information relating to commercial blood or plasma vendors is expressly prohibited, except as such disclosure is directly related to and necessary for enforcement of this chapter or as is required by law. (1994 C., § 11.68.060; Ord. No. 59751, § 6, 1986.)

11.68.070 Breath analysis.

It shall be unlawful for any said facility in the City to extract whole blood or plasma from a commercial blood or plasma vendor unless, immediately prior to said extraction, the facility shall analyze the breath of the commercial blood or plasma vendor and determine from such analysis that the blood of the commercial blood or plasma vendor does not contain alcohol in excess of 0.07 percent, weight per volume or its equivalent by other measure. For the purpose of performing the required breath analysis, each facility in the City shall maintain upon the premises thereof such testing materials, equipment, supplies, and personnel as are approved by the Division. (1994 C., § 11.68.070; Ord. No. 59751, § 7, 1986.)

11.68.080 Reporting of communicable disease.

Any blood collection or plasmapheresis facility which shall discover that the vendor evidences venereal disease, or other communicable disease shall immediately submit to the Division a confidential report setting forth the evidence of the disease and the vendor's name, address, registration-identification number and other information sufficient to identify and locate the vendor. The Health Commissioner shall establish written procedures for reporting the above information. (1994 C., § 11.68.080; Ord. No. 59751, § 8, 1986.)

11.68.090 Prohibited acts.

It shall be unlawful for any person to obtain or attempt to obtain or possess more than one (1) vendor registration-identification card or more than one (1) vendor identification number within the prescribed time, or for any person to attempt to utilize a vendor registration-identification card or vendor identification number of another individual, or for any person to provide false information to any said facility or to the St. Louis Health Division in connection with the application for a vendor identification number or in connection with any procedure. (1994 C., § 11.68.090; Ord. No. 59751, § 9, 1986.)

11.68.100 Enforcement and inspection.

It shall be the responsibility of the Health Commission of the St. Louis City Health Division or his

duly authorized representative to enforce the provisions of this chapter throughout the City and the Health Commissioner may promulgate rules and regulations necessary to carry out the provisions of this chapter. The St. Louis City Health Division may make periodic inspections of each said facility of the City for the purpose of determining the existence of any violation of this chapter. (1994 C., § 11.68.100; Ord. No. 59751, § 10, 1986.)

11.68.110 Denial, suspension or revocation of registration-identification card.

A. If the Health Commissioner of the St. Louis City Health Division determines that an individual has violated a provision of this chapter, he may deny, suspend or revoke any vendor registration-identification card or identification number, according to the following criteria:

1. For a violation by a person who is not a registered commercial blood or plasma vendor, a disqualification of that person from becoming a registered vendor for a period not exceeding ninety (90) days for each violation;

2. For the first violation by a registered commercial blood or plasma vendor, suspension of the vendor registration-identification card and number and all the privileges incident thereto for a period not exceeding ninety (90) days;

3. For the second violation by a registered commercial blood or plasma vendor, suspension of the vendor registration-identification card and number and all privileges incident thereto for a period not exceeding one (1) year;

4. For the third violation by a registered commercial blood or plasma vendor, suspension of the vendor registration-identification card and number and all the privileges incident thereto for a period not exceeding five (5) years, or permanent revocation of the vendor registration-identification card and registration number and all the privileges incident thereto.

B. If the Health Commissioner of the St. Louis City Health Division or his designee shall determine that a violation of this chapter or any regulation promulgated hereunder has occurred, the Health Commissioner may take one or more of the following actions:

1. Service upon the person or facility in violation of a citation setting forth the violation and establishing a time within which such violation must be corrected;

2. Initiation of a procedure for the denial, revocation, suspension, limitation of any commercial blood or plasma vendor registration-identification card;

3. The initiation of a judicial procedure for injunctive action against any individual or organization violating this chapter, it being hereby declared that the performance of whole blood extraction and/or the plasmapheresis procedure on any commercial blood or plasma vendor in violation of this chapter or any regulation promulgated hereunder is a nuisance inimical to the public health, welfare and safety;

4. Whenever the Health Commissioner of the Division shall have determined the existence of a violation of this chapter which constituted an immediate threat to the health, safety or welfare of a commercial blood or plasma vendor, a potential recipient of blood or plasma or the public, and such condition cannot or will not be immediately corrected, the Health Commissioner may order the immediate closing of such facility and request the City Counselor to initiate judicial proceedings seeking injunctive relief to accomplish said purpose until such time as the threat is found no longer to exist;

5. The Health Commissioner may also refer any violation of this chapter to the City Counselor's Office for prosecution in the City Courts.

C. Whenever the Health Commissioner of the St. Louis City Health Division or his duly authorized representative believes there has been a violation of the provisions of this chapter, he shall serve notice of such violation in writing to the party responsible for such violation. The notice shall specify the violation and shall be deemed to be properly served and binding upon the party responsible, if a copy is served personally or served by certified mail at the address reported under Section 11.68.060. Such notice shall inform the party to whom it is directed of the right to apply to the Board of Public Service for a hearing and review of the matters specified in the notice. (1994 C., § 11.68.110; Ord. No. 59751, § 11, 1986.)

11.68.120 Appeals.

Any person aggrieved by a decision of the Division made under the provisions of this chapter shall have the right to appeal such decision to the Board of Public Service (Board). Said appeal must be in writing and received by the Board no later than ten (10) days from the date of the decision to be reviewed. The Board shall set such appeal for hearing at the earliest possible date,

and cause notice thereof to be given to the appellant and the Health Commissioner of the St. Louis City Health Division. The Board shall hear and consider all facts material to the appeal and render a decision promptly. The Board may affirm, reverse, or modify the action or decision appealed from, providing that the Board shall not take any action which conflicts or nullifies any of the provisions of this chapter. The Board shall specifically state in its decision the date by which compliance must be made. The decision of the Board shall be final, and no rehearing or reconsideration shall be considered. Any party aggrieved by any decision of the Board on appeal taken to it, may apply to the Circuit Court of the City for a review. (1994 C., § 11.68.120; Ord. No. 59751, § 12, 1986.)

11.68.130 Penalty for violation.

A conviction for violation of the provisions of this chapter shall be punishable by a fine not to exceed five hundred dollars ($500.00) or by imprisonment in the City Jail for a term not to exceed ninety (90) days or both such fine and imprisonment. (1994 C., § 11.68.130; Ord. No. 59751, § 13, 1986.)

Chapter 11.70

STORAGE, TRANSPORTATION AND DISPOSAL OF WASTE TIRES

Editor's note:

Ord. No. 71123, §§ 1—15, adopted March 25, 2020, has been treated by the editor as repealing former Ch. 11.70, §§ 11.70.010—11.70.030, and adding a new Ch. 11.70. Former Ch. 11.70 pertained to tire storage, and derived from the Code of 1994, §§ 11.70.010—11.70.030; and Ord. No. 61352 of 1989.

Sections:

11.70.010 Definitions.
11.70.020 Administration and enforcement.
11.70.030 Prohibited activities.
11.70.040 Department of public safety duties and responsibilities.
11.70.050 Tire dealers.
11.70.060 Waste tire sites.
11.70.070 Waste tire site tire storage.
11.70.080 Waste tire site closure plan.
11.70.090 Abatement of violations.
11.70.100 Waste tire haulers.
11.70.110 Limited storage of waste tires.
11.70.120 Suspension and revocation of permits and registration.
11.70.130 Judicial review of suspension and revocation of permits.
11.70.140 Cease sales list.
11.70.150 Penalty for violation.

11.70.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except when context clearly indicates a different meaning:

1. *Auto salvage yard* means a place that stores salvage vehicles for more than fifteen (15) consecutive calendar days or dismantles salvage vehicles for the sale of parts or buys and sells motor vehicle parts and accessories or stores used motor vehicle parts and accessories for more that fifteen (15) consecutive days. For purposes of this chapter a salvage yard is also a waste tire site.

2. *Chipped or shredded tire* means a tire that has been reduced to parts no larger than that specified in the definition of a cut tire.

3. *Cut tire* means a waste tire cut in half circumferentially, or cut into at least three parts with no part being larger than approximately one-third the original tire's size, or the sidewalls removed from the treads.

4. *Department* means the City of St. Louis Department of Public Safety.

5. *Designated agent* is an individual designated by a holder of a permit issued by the City of St. Louis pursuant to this chapter who is in actual management and control of the permitted business.

6. *Director* is the director of the City of St. Louis Department of Public Safety or their designated representative.

7. *Department of Natural Resources* or *DNR* means the Missouri Department of Natural Resources.

8. *Individual* means a natural person.

9. *Owner operator* mean any person who owns, leases, operates, or controls a waste tire processing facility, tire dealer, salvage yard, auto salvage yard, or is a waste tire hauler.

10. *Permit holder* means the owner operator for the site for which a permit issued pursuant to this chapter is sought.

11. *Person* means an individual, business or charitable organization or association, corporation, partnership, firm, limited liability company, or limited liability partnership.

12. *Registrant* means the owner operator of a business required to register as a waste tire hauler pursuant to this chapter.

13. *Salvage* means old or scrap copper, brass, rope, rags, batteries, paper, rubber debris, iron, steel and other old or scrap ferrous or nonferrous material.

14. *Salvage vehicle* means a vehicle which is incapable of operation or use upon the highways or which has no use or resale value except as a source of parts or salvage. The absence of any of the following items shall be deemed to render a vehicle inoperable: front or rear fender, front or rear quarter panel, hood, trunk lid, front grill, front or rear clip, wheel, front or rear axle, engine, transmission, instrument panel, windshield or window, or dashboard.

15. *Salvage yard* means an establishment, area or place of business maintained, operated or used for the storing, keeping, buying, or selling of salvage. For purposes of this chapter a salvage yard is also a waste tire site.

16. *State* means the State of Missouri.

17. *Tire dealer* means any establishment or place of business where new, used, or remanufactured tires are bought or sold.

18. *Vector* means any organism, such as an insect, that transmits a pathogen.

19. *Waste tire* means a tire that is no longer suitable for its original intended purpose because of wear, damage or defect or has been discarded with the intent of final disposal.

20. *Waste tire hauler* means any person that is in the business of hauling or transporting waste tires within the City of St. Louis, or that hauls or transports waste tires within the City of St. Louis as a supporting function of their regular business activities.

21. *Waste tire processing facility* means any establishment or place of business where waste tires are processed for disposal, recycling or for other legal purposes.

22. *Waste tire site* means any establishment or place of business where more than ten (10) waste tires are maintained or stored for more than fifteen (15) consecutive days. (Ord. No. 71123, § 1, 3-25-2020.)

11.70.020 Administration and enforcement.

A. The Director shall be responsible for the implementation, administration and enforcement of the provisions of this chapter.

B. Wherever conflicting provisions or requirements occur between this chapter and any other City of St. Louis ordinance, or Missouri State or federal laws and regulations the most restrictive shall govern.

C. The Director is authorized to make and promulgate reasonable and necessary rules and regulations to carry out the provisions of this chapter. A copy of all such rules and regulations shall be filed in the Director's office, and made available to the public at said office and the main offices of all departments and divisions under the Director, and shall published on the Department website.

D. At least thirty days (30) days prior to the effective of this chapter the Director shall have in place, ready for implementation: rules and procedures for applying for and issuing tire dealer permits, waste tire site permits, and registering as a waste tire hauler, and ensure that permit holders and registrants update the information on their application or registration as required in this chapter; rules and procedures for conducting the inspections required in Section 11.70.040.A.1 of this chapter; and rules and procedures for submitting complaints of violations of this chapter, including a standard complaint form, and investigating such complaints. (Ord. No. 71123, § 2, 3-25-2020.)

11.70.030 Prohibited activities.

A. It shall be unlawful for any person to dispose of waste tires in the City of St. Louis except as provided in this chapter. Waste tires shall be collected only at a waste tire site, waste tire facility, or a temporary site as specifically allowed by Missouri State or federal laws or regulations and approved by the Director.

B. It shall be unlawful for any person to maintain a waste tire facility unless the facility has a valid permit issued by the Department of Natural Resources for the proper and temporary storage of waste tires, or is exempt from the State's permit requirements, and has a valid waste tire site permit issued by the City of St. Louis.

C. It shall be unlawful for any person to maintain a waste tire site, or allow a waste tire site to be maintained on property owned or controlled by them without a valid waste tire site permit issued by the City of St. Louis.

D. It shall be unlawful for the owner operator of a waste tire site that is not a waste tire facility to store more than more than fifty (50) waste tires for a period longer than thirty (30) consecutive days except as provided in Section 11 of this chapter.

E. It shall be unlawful for any person to maintain an auto salvage yard or salvage yard without a valid waste tire site permit issued by the City.

F. It shall be unlawful for an individual to store or maintain waste tires or allow waste tires to accumulate on property that is owned or controlled by them except as provided in Section 11 of this chapter.

G. It shall be unlawful for any person that is in the business of hauling or transporting waste tires in the City of St. Louis, or for any person to haul or transport more than five (5) waste tires as a supporting function of their regular business activities without a waste tire hauler permit.

H. It shall be unlawful for any person to maintain a tire dealer unless the owner operator has a valid tire dealer permit issued by City of St. Louis for each location in the City of St. Louis where the person engages in the buying or selling of new, used, or remanufactured tires, and locations in the City of St. Louis where waste tires are stored or maintained by the tire dealer. (Ord. No. 71123, § 3, 3-25-2020.)

11.70.040 Department of Public Safety duties and responsibilities.

A. The Department shall:

1. Locate, investigate and document sites where waste tires are maintained or stored, accumulated or allowed to accumulate, and initiate efforts to bring sites in violation of this chapter into compliance.

2. Assist neighborhood organizations and community groups with applying for grants aimed at dealing with problems created by waste tires, and shall work in coordination with other City of St. Louis departments and divisions, and the Department of Natural Resources to educate the public about proper waste tire disposal and the dangers presented when waste tires are not properly maintained and disposed of, and illegal dumping.

3. Work in coordination with other City of St. Louis departments and divisions, and the Department of Natural Resources to educate owners operators of waste tire facilities, waste tire sites, tire dealers and waste tire haulers about this chapter, the consequences for its violation, proper waste tire disposal and the dangers presented when waste tires are not properly maintained and disposed of, and illegal dumping.

4. Inspect each calendar year all waste tire sites, tire dealers, and tire facilities to ensure compliance with this chapter. At least fourteen (14) calendar days prior to this annual inspection the Department shall send written notice of the coming inspection to the owner operator or designated agent as indicated on the permit. The owner operator or designated agent shall ensure that the tire dealer, waste tire site, or waste tire facility premises and any required documents such as permits and waste tire tracking reports are made available for inspection, and may accompany the Department inspectors during their inspection.

5. Inspect complaints of violations of this chapter.

B. The Director, any City of St. Louis police officer, member of the City of St. Fire Department, and members of the City's Health Department, or other City department or division having responsibility for the preservation of the health and welfare of the residents of the City shall inspect complaints of violations of this chapter that are reported to them. Copies of all complaints of violations of this chapter that are received or summary descriptions of complaints not made in writing shall be promptly submitted to the Director. (Ord. No. 71123, § 4, 3-25-2020.)

11.70.050 Tire Dealers.

A. Ninety (90) days following the effective date of this chapter, it shall be unlawful for a tire dealer within the City of St. Louis to conduct business without a valid tire dealer permit issued by the City of St. Louis. A permit shall be required for each location in the City of St. Louis where the tire dealer engages in the buying or selling of new, used, or remanufactured tires, and locations in the City of St. Louis where waste tires are stored or maintained by the tire dealer.

B. A tire dealer permit is required in addition to any other permit or license required by the City of St. Louis, State of Missouri or federal government. Permits shall not be issued to tire dealers for locations where the business activities are prohibited under City of St. Louis ordinance, Missouri State or federal law or regulation, or government agency rules.

C. When transporting more than five (5) waste tires at any one time within the City of St. Louis tire dealers shall maintain a copy of their current tire dealer

permit and waste tire hauler registration inside the vehicle being used to haul or transport the waste tires, as well as copies of any documents or reports required by the Missouri Department of Natural Resources on forms provided by the Missouri Department of Natural Resources, or on a similar form or in a similar format that is preapproved by the Missouri Department of Natural Resources. Tracking reports required by the Missouri Department of Natural Resources shall be filled out for each load of waste tires delivered to an approved destination and shall include all applicable collection and receiver data. Copies of the forgoing permits, documents, and reports shall be maintained by the tire dealer at their place of business for at least three (3) years from the date of their creation, or longer as may be required by applicable laws, regulations, and government agency rules, and the tire dealer shall make them available for inspection upon request by the Director, any City of St. Louis police officer, member of the City of St. Louis Fire Department, or any member of a City department or division having responsibility for the preservation of the health and welfare of the residents of the City of St. Louis.

D. Tire dealers shall have a designated agent that will be the individual authorized to act on behalf of the tire dealer and may receive notifications (including notification of violations) that may be issued by the City of St. Louis.

E. Applications for a tire dealer permit or to renew a tire dealer permit shall be made in writing to the Department in accordance with any rules and procedures established by the Director for applying for a tire dealer permit. The following information shall be provided on the tire dealer permit application:

1. The full legal name and primary address of the owner and operator.

2. The primary business address, and full legal name and any fictitious names used by any business operating at the locations for which a tire dealer permit is sought.

3. The address for each of the locations for which tire dealer permit is sought, and a description of the business activity conducted at said locations.

4. If the owner operator is a limited liability company, the name of the managing member, if one is designated in the limited liability company documents, shall be provided on the application.

5. If the owner operator is a partnership, the full name and place of residence/business of each general partner shall be provided on the application;

6. If a general partner of a partnership is a corporation, then that corporation shall list on the application the full name, position and place of residence of each officer and director of that corporation.

7. If the owner operator is doing business under a fictitious name, both legal and fictitious names shall be listed on the application.

8. The hours of operation and days of the week that the business will be open for operation.

9. The name, telephone number and address of the owner operator's designated agent.

10. Sales tax number if required by the State of Missouri for the owner operator to do business at the site for which a tire dealer permit is sought.

11. An official receipt from the City of St. Louis Collector of Revenue evidencing all taxes have been paid or a statement of no taxes due for the for which a tire dealer permit is sought and are owned by the owner operator.

12. The name, address and telephone number of the owner of the real estate for which a tire dealer permit is sought if not owned by the owner operator.

13. Certificates from the City of St. Louis Building Division and Fire Department stating that the locations for which a tire dealer permit is sought are compliant with the City's building and fire codes.

14. Other information that pertains to a tire dealer operating in the City of St. Louis as may be required by the Director.

Tire dealer applications shall be dated and signed by the owner operator, designated agent, or other person authorized to sign on behalf of the owner operator applying for the tire dealer permit.

Tire dealers shall notify the Department in writing of any changes to information required on the application by submitting an updated application to the Department within thirty (30) days of any such change.

F. The effective period for all tire dealer permits will be one (1) year beginning and ending on dates which are to be determined by the Director. The initial application may be for a portion of one year. The Director shall send an application for renewal of the permit to the owner operator or designated agent at least ninety (90) days prior to the date of expiration, however, failure of the Director to send this courtesy notice shall not excuse the tire dealer's failure to renew

their permit. The completed renewal application is due thirty (30) days prior to the expiration date of the then current permit. Failure to apply for a renewal of a permit within one-hundred and twenty (120) days of the expiration date shall render the expired permit null and void and a new permit must be applied for. (Ord. No. 71123, § 5, 3-25-2020.)

11.70.060 Waste Tire Sites.

A. Ninety (90) days following the effective date of this chapter, it shall be unlawful for a waste tire site within the City of St. Louis to conduct business without a valid waste tire site permit issued by the City of St. Louis. A permit shall be required for each location in the City of St. Louis where the owner operator maintains a waste tire site. A waste tire site permit shall be required in addition to any other permits that may be required by the City of St. Louis, and any Missouri State or federal agency.

B. Applications for a waste tire site permit or to renew a waste tire site permit shall be made in writing to the Department in a format and in accordance with any rules and procedures established by the Director for applying for a waste tire site permit. Owner operators applying for waste tire site permits shall provide the following information on their permit application:

1. The full legal name and primary address of the owner operator.

2. The primary business address, and full legal name and any fictitious names used by any business operating at the locations for which a waste tire site permit is sought.

3. The address for each of the locations for which tire site permit is sought, and a description of the business activity conducted at said locations.

4. If the owner operator is a limited liability company, the name of the managing member, if one is designated in the limited liability company documents, shall be provided on the application.

5. If the owner operator is a partnership, the full name and place of residence/business of each general partner shall be provided on the application;

6. If a general partner of a partnership is a corporation, then that corporation shall list on the application the full name, position and place of residence of each officer and director of that corporation.

7. If the owner operator is doing business under a fictitious name, both legal and fictitious names shall be listed on the application.

8. The hours of operation and days of the week that a business operating on the waste tire site will be open for operation.

9. The name, telephone number and address of the designated agent for the owner operator.

10. Sales tax number if required by the State of Missouri for the owner operator to do business at the site for which a tire site permit is sought.

11. An official receipt from the City of St. Louis Collector of Revenue evidencing all taxes have been paid or a statement of no taxes due for each location for which a waste tire site permit is sought and owned by the owner operator.

12. The name, address and telephone number of the owner of the real estate for which a waste tire site permit is sought if not owned by the owner operator.

13. Certificates from the City of St. Louis Building Division and Fire Department stating that the locations for which a waste tire site permit is sought are compliant with the City's building and fire codes.

14. Other information that pertains to a waste tire site operating in the City of St. Louis as may be required by the Director.

The application shall be dated and signed by the owner operator, designated agent, or other individual with authority to sign on behalf of the owner operator applying for the waste tire site permit. Permit holders shall notify the Department in writing of any changes to information required on the application by submitting an updated application to the Department within thirty (30) days of any such change.

C. Owner operators applying for a waste tire site permit must also provide the Department the following information at the time of application: A valid permit from the State to operate a scrap tire site pursuant to RSMo 260.270. A copy of such permit with the following attachments shall be provided to the department at the time of registration:

1. Detailed site plans and operational plans containing information necessary to demonstrate compliance with the storage requirements of this chapter.

2. Plans for final disposition of the waste tires.

3. A contingency plan designed to minimize the hazards to human health and the environment from fires, runoff of contaminants resulting from fires and from mosquitoes in case of failure of the primary

method of vector control. The contingency plan shall include, but not be limited to, the following items, as applicable:

4. The actions site personnel must take in response to fires, runoff resulting from fires and mosquito breeding in waste tires.

5. An evacuation plan for site personnel, in case of fire.

6. Evidence that the fire contingency plan has been provided to the fire department.

7. Evidence of compliance with local and Missouri Department of Natural Resources water pollution control regulations, (as set forth in 10 CSR 20-6.010).

D. The effective period for all waste tire site permits will be one (1) year beginning and ending on dates determined by the Director. The initial permit may be for a portion of one year. The Director shall notice of expiration and an application for renewal of the permit to the owner operator or designated agent at least ninety (90) days prior to the date of expiration, however, failure of the Department to send this courtesy notice shall not excuse the permit holder's failure to renew their permit. The completed renewal application is due thirty (30) days prior to the expiration date of the then current permit. Failure to apply for a renewal of a permit within one-hundred and twenty (120) days of the expiration date shall render the expired permit null and void and a new permit must be applied for. (Ord. No. 71123, § 6, 3-25-2020.)

11.70.070 Waste tire site tire storage.

A. The following storage requirements shall be met by each location for which a waste tire site permit is sought prior to applying for a permit:

1. *Fire protection.*

a. Whole waste tire storage shall meet the Standard for Storage of Rubber Tires as adopted by the National Fire Protection Association (NFPA).

b. Cut, chipped or shredded waste tire storage shall meet the fire prevention, exposure protection and fire-fighting access guidelines contained in the Standard for Storage of Rubber Tires as adopted by the National Fire Protection Association (NFPA).

c. Indoor storage of waste tires shall meet the requirements as adopted by the National Fire Protection Association (NFPA). (Copies of the NFPA standard for indoor and outdoor storage may be obtained by contacting the NFPA, P.O. Box 9101, Quincy, MA 02269, 800-344-3555.)

d. Outdoor storage shall meet the requirements as adopted by the National Fire Protection Association (NFPA).

(2) *Runoff protection.* Surface water drainage must be diverted around and away from waste tires.

(3) *Location.* Waste tire sites shall not be located in a wetland, sinkhole or floodplain (unless protection is provided against at least a 50-year flood by impervious dikes or other appropriate means to prevent the flood waters from contacting the waste tires).

(4) *Site control.* Waste tire sites shall be fenced or enclosed or otherwise made inaccessible. Signs shall be posted to prohibit unauthorized entry (wording such as "Access Restricted to Authorized Haulers Only" may be used.)

(5) *Vector control.* Conditions shall be maintained that are unfavorable for the harboring, feeding and breeding of vectors. If the method being used to control vectors is not effective, the owner/operator of the waste tire site must use an alternative method to correct the vector problem. The owner/operator of a waste tire site storing tires during the period April 1 through October 31 shall use one or more of the following methods of vector control:

a. Drain tires of water unless certified dry by the waste tire hauler and kept dry within a building, enclosed trailer or under cover impermeable to water. The cover shall be maintained to be impermeable to water.

1. Tires received November 1 through March 31 that contain water shall be drained of water by April 1.

2. Tires received April 1 through October 31 that contain water shall be drained of water within 24 hours of receipt.

b. Alter tires so as not to retain water. Tires received November 1 through March 31 shall be altered and drained of water by April 1. Tires received April 1 through October 31 shall be altered and drained of water upon receipt or be certified dry by the waste tire hauler. If certified dry by the waste tire hauler, the tires shall be altered within seven (7) days of receipt;

c. Treat the tires with a larvicide and/or adulticide appropriate to prevent the development of mosquito larvae and pupae and repeat treatment as often as necessary to prevent such development, taking-into-account the effectiveness and life of the larvicide and/or adulticide utilized.

1. Larvicides and/or adulticides must be applied in accordance with their label, Chapter 281 of the Revised Statutes of Missouri and Missouri Department of Agriculture regulations.

2. The dimensions of the tire pile and the method of stacking the tires shall allow for application of the larvicide and/or adulticide to all tires; and

d. Alternate methods of vector control may be approved by the department if documented to control larvae, pupae and adult mosquitoes. (Ord. No. 71123, § 7, 3-25-2020.)

11.70.080 Waste tire site closure plan.

The owner operator of a waste tire site shall ensure that the area is properly closed upon cessation of operations pursuant to RSMo 260.275. (Ord. No. 71123, § 8, 3-25-2020.)

11.70.090 Abatement of violations.

A. If the owner operator of a waste tire facility, waste tire site, or tire dealer that is in violation of this chapter fails to correct such violation within thirty (30) calendar days following their receipt of written notice thereof from the Department, the Director, in addition to resorting to any other available legal remedy, may declare the site to be a public nuisance and enter the site where the nuisance condition exists for the purpose of abating the nuisance condition with or without the consent of the owner operator, or occupant of the site and without being deemed to have committed a trespass. This limited right of entry shall extend to any person designated, hired or otherwise engaged by the Director to abate the nuisance conditions.

B. Following the abatement of the nuisance condition the Director shall determine the actual costs incurred by the City in abating the nuisance condition, including overhead costs up to $500.00, and send written notice to the owner operator or designated agent as identified on the permit application, that the abatement cost shall be assessed against the owner operator. If an owner operator so requests in writing within fifteen (15) days of their receipt of invoice notice the director shall hold a public hearing in accordance with Section 13 of this chapter to determine the reasonableness of the assessment. If a hearing is not requested and the assessment is not paid in full within thirty (30) days of receipt of the invoice then the Director shall certify the charge for abatement to the City Collector of Revenue as a special assessment represented by a special tax bill against the real property affected. (Ord. No. 71123, § 9, 3-25-2020.)

11.70.100 Waste tire haulers.

A. Ninety (90) days following the effective date of this chapter, it shall be unlawful for a waste tire hauler to conduct business in the City of St. Louis without a valid waste tire hauler registration issued by the City of St. Louis. Registration as a waste hauler shall be required in addition to any other permits or registrations that may be required by the City of St. Louis, and any Missouri State or federal agency.

B. Waste tire haulers shall:

1. Register with the Department prior to operating within the City.

2. Possess a valid permit from the State of Missouri to operate as a waste tire hauler pursuant to RSMo 260.270, and maintain a copy of said permit in a vehicle when being used to haul or transport waste tires. A copy of the permit must be provided to the Department at the time of registration as a waste tire hauler.

3. Maintain tracking and summary reports as required by the Missouri Department of Natural Resources on forms provided by the Missouri Department of Natural Resources or on similar forms or in a similar format that has been preapproved by the Missouri Department of Natural Resources. The tracking reports shall be filled out for each load delivered to an approved destination and shall include all applicable collection and receiver data. Copies of tracking reports shall be maintained by the waste tire hauler for at least three (3) years from the date of their creation, and made available for inspection by the Director, any City of St. Louis police officer, or any member of a City department or division having responsibility for the preservation of the health and welfare of the residents of the City of St. Louis.

C. Waste tire haulers must register with the Department using a form and following the rules and procedures for registering that are established by the Director. The following information shall be provided by the person seeking to register as a waste tire hauler on the registration form:

1. The full legal name and primary address of the owner operator seeking to register as a waste tire hauler.

2. The primary business address, and full legal name and any fictitious names used by the owner operator seeking to register as a waste tire hauler.

3. If the owner operator seeking to register as a waste tire hauler is a limited liability company, the name of the managing member, if one is designated in the limited liability company documents, shall be provided on the registration form.

4. If the owner operator seeking to register as a waste tire hauler is a partnership, the full name and place of residence/business of each general partner shall be provided on the registration form.

5. If a general partner of a partnership is a corporation, then that corporation shall list on the application the full name, position and place of residence of each officer and director of that corporation.

6. If the owner operator seeking to register as a waste tire hauler is doing business under a fictitious name, both legal and fictitious names shall be listed on the registration form.

7. The name, telephone number and address of the designated agent for the registered waste tire hauler.

8. Sales tax number if required by the State of Missouri.

9. Other information that pertains to a waste tire hauler operating in the City of St. Louis as may be required by the Director.

The registration shall be dated and signed by the owner operator, designated agent, or other individual with authority to sign on behalf of the owner operator seeking to register as a waste tire hauler. Waste tire haulers shall notify the Department in writing of any changes to the information required for registration by submitting an updated registration form to the Department within thirty (30) days of any such change.

D. The effective period for all waste tire hauler registrations will be one (1) year beginning and ending on dates determined by the Director. The initial registration may be for a portion of one year. The Director shall send notice or expiration of registration will be sent to the owner operator or designated agent at least ninety (90) days prior to the date of expiration, however, failure of the Director to send this courtesy notice shall not excuse the waste tire hauler for failing to renew their registration. The completed registration renewal form is due thirty (30) days prior to the expiration date of the then current registration.

E. Failure to comply with the provisions of this Section may result in denial, suspension or revocation of registered waste tire hauler status in addition to any fines that may be imposed for a violation of this chapter. (Ord. No. 71123, § 10, 3-25-2020.)

11.70.110 Limited storage of waste tires.

A. Any person having obtained a permit from the City of St. Louis to operate an auto salvage yard or salvage yards may store, but shall not bury, up to five-hundred (500) waste tires for a period not to exceed thirty (30) consecutive days without a waste tire site permit provided such waste tires are only from vehicles acquired by the auto salvage yard or salvage yard, have been chipped, cut or shredded, and are maintained or stored in accordance with this chapter, and Missouri State and federal laws and regulations.

B. Waste tires collected and stored by a waste tire facility for processing, disposal and recycling shall be stored as required by this chapter, all other applicable ordinances of the City of St. Louis, and Missouri State and federal laws and regulations.

C. Any person may maintain or store up to five (5) waste tires for recycling or for other useful purposes, and shall stack the same and maintain vector control unless they are being used for a useful purpose. (Ord. No. 71123, § 11, 3-25-2020.)

11.70.120 Suspension and revocation of permits and registration.

A. Whenever the Director has knowledge of any action or condition which would constitute grounds for the suspension or revocation of any permit or registration status issued under this chapter, or other reasonable cause to believe such grounds exist, the Director shall hold a hearing to ascertain all facts in the matter and determine whether or not the permit or registration status should be suspended or revoked. Not less than fifteen (15) days prior written notice shall be served on the permit holder or registrant, or the permit holder's or registrant's designated agent by personal service or mailed by certified or registered mail to them at their last known business or residence address, setting out the reason for the hearing and the conditions under which the hearing will be held. The permit holder or registrant shall have full right to be represented by counsel, to produce witnesses, and to cross examine all witnesses who may appear against him. All procedures in such hearings shall be recorded stenographically, mechanically or electronically or by a combination thereof and shall be transcribed at the expense of the party requesting the transcription. Subpoenas shall be issued by the Director for any witness whose presence is desired at any hearing or proceeding before the Director to suspend or revoke a permit or registration, and

such subpoenas may be served by any police officer. Such subpoenas shall be served and return thereon shall be made in the same manner provided by law in civil suits in the circuit court of this state.

B. If the Director holds a hearing in accordance with this Section and finds that a permit holder or registrant has violated any provision of this chapter or any regulation properly issued by the Director, the Director may suspend the permit or registration issued under this chapter for a period not to exceed ninety (90) days.

C. The Director may revoke the permit or registration if, following a hearing held in accordance with this Section, Director finds that:

(1) A permit holder or registrant has violated three or more provisions of this chapter or any regulation properly issued by the Director; or

(2) A permit or registration was obtained by misrepresentation or fraud, including knowingly providing false information; or

(3) A permit holder has violated the provisions of the cease sales list in Section 14 of this chapter; or

(4) A permit holder or registrant has failed to pay for more than sixty (60) days any fines or fees pursuant to this chapter.

D. Witnesses may also appear voluntarily at such hearings and testify. Before any witness shall testify in any such hearing, the witness shall be sworn by the Director to tell the truth and nothing but the truth.

E. The Director's decision and order shall be in writing and shall include, if so requested, findings of fact and conclusions of law. No suspension or revocation ordered by the Director following a hearing in accordance with this Section shall become effective until ten (10) days after the order has been issued. Appeal of the Director's decision can be pursued in accordance with the provisions of Section 13 of this chapter. (Ord. No. 71123, § 12, 3-25-2020.)

11.70.130 Judicial review of suspension and revocation of permits.

A. An owner, permit holder, or registrant affected by the action of the Director whereby a permit or registration status has been suspended or revoked under this chapter may seek judicial review in the manner provided by law.

B. Nothing contained in this chapter shall preclude the Director from reaching an informal disposition with a permit holder or the permit holder's agent of contested cases by stipulation, consent order, or by agreed settlement. (Ord. No. 71123, § 13, 3-25-2020.)

11.70.140 Cease sales list.

Any time a permit holder or registrant has been suspended or revoked, the permit holder or registrant shall be placed on a cease sales list during which time the permit holder is prohibited from buying or selling new or used tires or, in the case of a waste hauler, prohibited from hauling or transporting waste tires. (Ord. No. 71123, § 14, 3-25-2020.)

11.70.150 Penalty for violation.

A. Any person convicted of a violation of this chapter shall be punished for that violation by a fine of not less than one hundred dollars ($100.00) but not more than one thousand dollars ($1,000.00). All fines imposed shall be in accordance with the minimum fine schedule set out in this section. If, thirty (30) days after the owner operator's receipt of notice of a violation as provided in Section 11.70.090 of this chapter, each day that a violation continues shall be considered a separate offense, for which the violator may be assessed an additional fine.

B. Whenever the penalty is to be a fine, the fine shall be no less than the minimum amount set out in the following schedule:

(1) First offense minimum fine of one hundred dollars ($100.00) and a maximum fine of one thousand dollars ($1,000.00).

(2) Second offense minimum fine of three hundred dollars ($300.00) and a maximum fine of one thousand dollars ($1,000.00).

(3) Subsequent offenses minimum fine of five hundred dollars ($500.00) and a maximum fine of one thousand dollars ($1,000.00).

(Ord. No. 71574, § 1, 11-4-2022; Ord. No. 71123, § 15, 3-25-2020.)

Chapter 11.72

ROOMING HOUSE OR HOTEL DETRIMENTAL TO NEIGHBORHOOD

Sections:

11.72.010 Petition for hearing.
11.72.020 Hearing notice.
11.72.030 Verification of petition signatures.
11.72.040 Hearing conduct.

11.72.050 Determination of detrimental operation of premises.

11.72.060 Petition after denial of permit.

11.72.070 Permit reissuance for premises after revocation.

11.72.080 Workshop or residence facility exempted.

11.72.010 Petition for hearing.

The Board of Public Service, upon receipt by the Secretary of the Board of Public Service of a petition signed by either a majority of the persons owning real property or a majority of the registered voters occupying property within a prescribed petition circle drawn with a radius of three hundred fifty (350) feet plus one-half (½) of the width of the premises involved from the center of the front of said premises projected to the street alleging that the operation of the premises involved, which is being operated as a rooming house, boarding house, dormitory or hotel, is being operated in such manner, as factually set out in said petition, to constitute a detriment to the neighborhood, shall hold a public hearing based on said petition. (1994 C., § 11.72.010; Ord. No. 61971, § 1 1990.)

11.72.020 Hearing notice.

The Board of Public Service shall set a reasonable time for the hearing on said petition, shall give adequate public notice thereof, and shall give notice to the

person or persons who owns or operates the premises involved in writing with a copy of said petition by Certified Mail. (1994 C., § 11.72.020; Ord. No. 61971, § 2, 1990.)

11.72.030 Verification of petition signatures.

The Board of Public Service shall appoint one of its employees to check the petition filed in each proceeding and verify the signatures appearing thereon with the property owners whose names appear on the Assessor's records, or the registered voters whose names appear on the Board of Election Commissioner's records, as the case may be, and if such persons constitute a majority of property owners or registered voters in said petition circle. A report thereof shall be made at the public hearing before any testimony is received at said hearing. (1994 C., § 11.72.030; Ord. No. 61971, § 3, 1990.)

11.72.040 Hearing conduct.

The hearing shall be conducted in the same manner as the Board of Public Service conducts its weekly public meetings. If a majority of the Members of the Board of Public Service present at said hearing on the petition shall decide that the operation of the premises involved constitutes a detriment to the neighborhood, they shall set out in their written order the facts on which their decision is based and the time limit or conditions of suspension, or revocation of said permit to operate said rooming house, boarding house, dormitory or hotel. A copy of said order shall be published in the City Journal and sent by Certified Mail to the owner or operator of the premises involved. Any person adversely affected by said order shall have a right of Judicial Review as provided by RSMo 536.100 (1986), as supplemented. (1994 C., § 11.72.040; Ord. No. 61971, § 4, 1990.)

11.72.050 Determination of detrimental operation of premises.

A. In determining whether the operation of a premises is detrimental to the neighborhood in which the premises is located the Board of Public Service shall consider the following factors, giving such weight thereto as they deem appropriate:

1. The character of the neighborhood in which the premises is located, with particular consideration being given to the proximity of the premises to parks, churches, schools, playgrounds, residences and hospitals;

2. Loitering in the immediate vicinity of the premises by persons frequenting the premises;

3. Littering committed by persons frequenting the premises or by the permit holder, his agents, servants or employees;

4. Drinking in public by persons frequenting the premises;

5. Lewd and indecent conduct, including, but not limited to, public urination, exhibited by persons frequenting the premises or by permit holder, his employees, servants or agents, whether such behavior occurs on the premises or in the immediate vicinity thereof;

6. Commission of crimes upon or in the immediate vicinity of a premises by persons frequenting the premises or by the permit holder, his employees, servants or agents;

7. Sale or use of illegal drugs upon or in the immediate vicinity of the premises by persons frequenting the premises or by the permit holder, his employees, servants or agents;

8. Harassing or intimidating behavior exhibited by persons frequenting or congregating about the premises toward persons living in the neighborhood in which the premises is located or toward persons passing by the premises;

9. Noise associated with the operation of the premises or caused by persons frequenting the premises;

10. Street and sidewalk congestion associated with operation of the premises;

11. Existence of proper lighting and appropriate parking facilities, or the lack thereof;

12. Other facilities, which, due to the character of the neighborhood or of the premises, would be relevant to the determination of whether continuation of a permit would be detrimental to the neighborhood in which the premises is located.

B. The Board of Public Service may find that continuation of a permit would be detrimental to the neighborhood in which a premises is located without finding that such detriment is or would be due to the fault or negligence, or is or would be the responsibility, of the permit holder. For purposes of this chapter, a person shall be considered to frequent a premises if he lives or works at, or visits the premises or if he loiters about the immediate vicinity of the premises but would not do so except for the existence of the premises. (1994 C., § 11.72.050; Ord. No. 61971, § 5, 1990.)

11.72.060 Petition after denial of permit.

No petition to suspend or revoke a permit to operate a rooming house, boarding house, dormitory or hotel under the provisions of this chapter shall be accepted by the Secretary of the Board of Public Service for a period of six months after the Board of Public Service has denied, after a hearing, a previous petition to suspend or revoke such a permit for the same premises. (1994 C., § 11.72.060; Ord. No. 61971, § 6, 1990.)

11.72.070 Permit reissuance for premises after revocation.

Notwithstanding Ordinance 60828, approved April 11, 1988 (Section 25.04.060), no application shall be accepted by the Secretary of the Board of Public Service for a permit to operate a rooming house, boarding house, dormitory or hotel for a period of six (6) months after the Board of Public Service has revoked, after a hearing, a previous permit for any such uses for the same premises. (1994 C., § 11.72.070; Ord. No. 61971, § 7, 1990.)

11.72.080 Workshop or residence facility exempted.

This chapter shall not be construed to allow the filing of a petition to suspend or revoke the permit of a sheltered workshop or residence facility authorized by RSMo 205.968 to 205.973 (1986), as supplemented. (1994 C., § 11.72.080; Ord. No. 61971, § 8, 1990.)

Chapter 11.74

DIPHENHYDRAMINE

Sections:

11.74.010 Purchased for resale—Recordkeeping required.
11.74.020 Sale—Maximum units and dosage.
11.74.030 Possession—Maximum.
11.74.040 Records—Inspection.
11.74.050 Violation—Penalty.

11.74.010 Purchased for resale—Recordkeeping required.

Every person or retailer that purchases diphenhydramine for the purpose of reselling said substance must keep records of such purchases. Said records must include the name and address of the wholesaler or other entity from which the substance was purchased, the date of the purchase and the quantity of the substance purchased. (1994 C., § 11.74.010; Ord. No. 63651, § 1, 1996.)

11.74.020 Sale—Maximum units and dosage.

No person shall offer for a sale or sell more than one hundred dosage units, in pill, capsule or any other container containing diphenhydramine to any person in a twenty-four-hour period. The maximum dosage of each pill, capsule or other container can be no more than twenty-five milligrams. (1994 C., § 11.74.020; Ord. No. 63651, § 2, 1996.)

11.74.030 Possession—Maximum.

No person, other than a wholesaler or retailer that has a business license issued by the City of St. Louis, may possess more than one hundred capsules, pills or other container that contains more than a total of three thousand milligrams of said substance. (1994 C., § 11.74.030; Ord. No. 63651, § 3, 1996.)

11.74.040 Records—Inspection.

Any record required under this chapter shall be maintained for two years and shall be available for inspection by commissioned members of the St. Louis Metropolitan Police Department during normal working hours. (1994 C., § 11.74.040; Ord. No. 63651, § 4, 1996.)

11.74.050 Violation—Penalty.

Any person convicted of violating this chapter shall be fined not less than two hundred dollars nor more than five hundred dollars and/or be imprisoned for up to ninety days. In addition, any person convicted of violating this chapter shall have the business license of the offending establishment suspended by the License Collector for a period of ninety days from the date of conviction. (1994 C., § 11.74.050; Ord. No. 63651, § 5, 1996.)

Chapter 11.75

EPHEDRINE OR PSEUDO EPHEDRINE

Sections:

11.75.010 Definitions.
11.75.020 Violations.
11.75.030 Report of theft.
11.75.040 Penalty.

11.75.010 Definitions.

For purposes of this chapter the following definitions shall apply:

A. "Ephedrine" means all forms of ephedrine, pseudo ephedrine, ephedrine hydrochloride, pseudo ephedrine hydrochloride, phenylpropanolamine and all combinations of these chemicals.

B. "Ephedrine product" means any product that contains ephedrine, its salts, isomers or salts of isomers, as its sole active ingredient or in combination with less than therapeutically significant quantities of other active ingredients.

C. "Person" means any individual, corporation, partnership, trust, Limited Liability Company, firm, association or other entity selling an ephedrine product to customers.

D. "Sell" means to knowingly furnish, give away, exchange transfer, deliver, surrender or supply, whether for monetary gain or not.

E. "Package" means any number of pills, tablets, capsules, caplets or individual units of a substance held within a container intended for sale.

F. "Counter" means any obstructive, physical barrier that separates ephedrine products from access by a customer or the general public, and which makes such products available to a customer or the general public only through or by the act of an employee of the seller. (1994 C., § 11.75.010; Ord. No. 65802, § 1, 2003.)

11.75.020 Violations.

Beginning One Hundred and Twenty (120) days from the effective date of this chapter, it shall be a violation of this chapter for any person to display or offer to sell any ephedrine product unless the ephedrine product is placed behind a counter or contained in a theft proof dispenser which is designed to limit access to multiple ephedrine products. The provisions of this section shall not apply to the sale of animal feed containing ephedrine. (1994 C., § 11.75.020; Ord. No. 65802, § 2, 2003.)

11.75.030 Report of theft.

Any person who sells ephedrine products and who discovers a theft, disappearance or other loss of an ephedrine product shall report the theft, disappearance or loss in writing to the St. Louis Metropolitan Police Department within three calendar days of such a discovery. Any person who sells ephedrine products shall report to the St. Louis Metropolitan Police Department any difference between the quantity of ephedrine products shipped and the quantity of ephedrine products received by such person within three calendar days of discovery. (1994 C., § 11.75.030; Ord. No. 65802, § 3, 2003.)

11.75.040 Penalty.

Any person found to be in violation of the provisions of this chapter shall be subject to a fine of not more than five hundred ($500.00) dollars and a term of imprisonment not to exceed ninety (90) days or both a fine and imprisonment. Each day a violation of this chapter exists shall be considered a separate violation. Every act or omission constituting a violation of this chapter by any agent or employee of any person shall be deemed and held to be the act of such person, and such person shall be punishable in the same manner as if such act or omission had been done or omitted by such person, provided such act or omission was within the scope of employment or the scope of authority of such agent or employee. (1994 C., § 11.75.040; Ord. No. 65802, § 4, 2003.)

Chapter 11.76

RESERVED

Editor's Note:

Ord. No. 70399, § 1, adopted November 23, 2016, amended the Code by repealing former ch. 11.76, §§ 11.76.010—11.76.040, in its entirety. Former ch. 11.76 pertained to distribution of free tobacco products, and derived from Ord. No. 63747, adopted 1996.

Chapter 11.77

ALTERNATIVE NICOTINE PRODUCTS AND VAPOR PRODUCTS

Sections:

11.77.010 Definitions.

11.77.020 Sale of distribution to, or purchase or receipt by person under 21 years old prohibited.

11.77.030 Sales or distribution in public areas prohibited.

11.77.040 Vending machines.

11.77.050 Parental responsibility.

11.77.060 Enforcement.

11.77.070 Prohibition of selling, distributing or vending without a sign.

11.77.080 Penalties.

11.77.090 Use of smokeless tobacco, alternative nicotine products or vapor products at professional, collegiate, high school and organized amateur sporting events.

11.77.010 Definitions.

For purposes of this chapter the following definitions shall apply:

A. "Alternative Nicotine Product" means any non-combustible product containing nicotine that is in-

tended for human consumption, whether chewed, absorbed, dissolved or ingested by any other means. The term does not mean any vapor product, tobacco product or any product regulated as a drug or device by the United States Food and Drug Administration under Chapter V of the Food, Drug and Cosmetic Act or any amendment thereto.

B. "Vapor Product" means any non-combustible product with or without nicotine that employs a heating element, power source, electronic circuit or other electronic, chemical means, regardless of shape or size, which can be used to produce vapor with nicotine in a solution or other form. The term includes any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe or similar product or device, and any vapor cartridge or other container of nicotine in a liquid solution or other form that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe or similar product or device. The term does not include alternative nicotine or tobacco products.

C. "Minor" shall mean any person under the age of twenty-one (21) years of age.

D. "Vending Machine" means any mechanical, electric or electronic self-service device which upon insertion of money, tokens or any other form of payment, dispenses tobacco products, alternative nicotine products or vapor products.

E. "Department" means the Department of Health of the City of St. Louis.

F. "Proof of Age" means a driver's license or other documentary or written evidence that the individual is twenty-one years old or older. (1994 C., § 11.77.010; Ord. No. 70400, § 1, 11-23-2016.)

11.77.020 Sale of distribution to, or purchase or receipt by person under 21 years old prohibited.

A. No person shall sell or distribute alternative nicotine products or vapor products to any person under twenty-one (21) years old.

B. Any person found to have sold or distributed any alternative nicotine product or vapor product to a family member who is under twenty-one (21) years old shall be deemed to be in violation of Subsection A of this section.

C. It shall be unlawful for any person under the age of twenty-one (21) years old to represent that he or she has attained the age of twenty-one (21) years old for the purpose of purchasing, asking for in any way, or receiving alternative nicotine products or vapor products except in cases authorized by law, including as authorized by the Department of law enforcement.

Editor's Note:

"Department of law enforcement appears" in original text of ordinance; should read "Department of Health."

D. It shall be unlawful for any person to give, lend, sell or otherwise provide any person under the age of twenty-one (21) years old any falsified identification or identification of another person for the purpose of establishing the age of the individual as being twenty-one (21) years old or older.

E. Any person selling or distributing alternative nicotine products or vapor products shall require proof of age from the prospective purchaser or recipient is twenty-one (21) years old or older.

F. If a sale or distribution of alternative nicotine products or vapor products is made by an employee of the owner of an establishment in violation of this section, the employee acting on behalf of the owner, as well as the owner of the establishment shall be in violation of this section. (1994 C., § 11.77.020; Ord. No. 70400, § 1, 11-23-2016.)

11.77.030 Sales or distribution in public areas prohibited.

No person shall sell or distribute alternative nicotine products or vapor products to any person in or on any public street, public sidewalk, park, school, playground, or other property owned by the City of St. Louis or owned by another governmental entity. (1994 C., § 11.77.030; Ord. No. 70400, § 1, 11-23-2016.)

11.77.040 Vending machines.

A. Any vending machine used for the sale or distribution of alternative nicotine products or vapor products may only dispense alternative nicotine products and/or vapor products.

B. Any vending machine must only be located in an area:

1. Where persons under the age of twenty-one (21) years old are denied access; or

2. In public places where persons under the age of twenty-one (21) years old are granted access, but only if the vending machine:

a. Is located in areas of factories, businesses, offices or other places that are not open to the public; or

b. Is under the continuous active supervision of the owner or lessee of the premises or an employee thereof; or

c. Can be operated only by the activation of an electronic switch by the owner or lessee of the premises, or an employee thereof prior to such purchase; and

d. Is inaccessible to the public when the premises are closed. (1994 C., § 11.77.040; Ord. No. 70400, § 1, 11-23-2016.)

11.77.050 Parental responsibility.

It shall be unlawful for a natural or adoptive parent of a juvenile, any person having legal custody of a juvenile, or an adult who has assumed responsible custody or control of a juvenile after receiving written notice of this section to knowingly permit a juvenile to violate this section under circumstances not constituting an exception to this section. (1994 C., § 11.77.050; Ord. No. 70400, § 1, 11-23-2016.)

11.77.060 Enforcement.

A. The Department may engage in activities calculated to measure and ensure compliance with the provisions of this section. Private organizations and individuals, as may be designated by the Department, may engage in such activities to measure and ensure compliance with the provisions of this section when such activity is authorized and approved by the Department.

B. The authority to enforce the provisions of this section is vested in the Department and in the St. Louis Metropolitan Police Department.

C. The Department may choose to utilize the provisions of Chapter 11.95 for administrative citations to enforce the provisions of this section.

D. Persons under the age of twenty-one (21) years old may be enlisted to test compliance with the provisions of this section; provided, however, that juveniles who are under the age of 18 years old may be used to test compliance only if written consent of such person's natural or adoptive parent of a juvenile, any person having legal custody of a juvenile, or an adult who has assumed responsible custody or control of a juvenile is on file with the Department and only under the auspices of the Department. (1994 C., § 11.77.060; Ord. No. 70400, § 1, 11-23-2016.)

11.77.070 Prohibition of selling, distributing or vending without a sign.

It shall be unlawful for any person to sell, distribute or vend, or permit the sale, distribution or vending of alternative nicotine products, or vapor products on premises he owns or leases unless the premises upon which such items are sold, distributed or vended prominently displays a sign which shall contain in red capital lettering at least one-half inch high on white background, and spaced so the sign is clear and readable:

> IT IS A VIOLATION OF THE LAW FOR ALTERNATIVE NICOTINE PRODUCTS OR VAPOR PRODUCTS TO BE SOLD OR DISTRIBUTED TO ANY PERSON UNDER THE AGE OF TWENTY-ONE (21).

If both tobacco products and alternative nicotine products or vapor products are sold, distributed, or vended, one sign may prominently be displayed which shall contain in red lettering at least one-half inch high on white background, and spaced so that the sign is clear and readable, the following:

> IT IS A VIOLATION OF THE LAW FOR TOBACCO PRODUCTS, LATERNATIVE NICOTINE PRODUCTS OR VAPOR PRODUCTS TO BE SOLD OR DISTRIBUTED TO ANY PERSON UNDER THE AGE OF TWENTY-ONE (21). (1994 C., § 11.77.070; Ord. No. 70400, § 1, 11-23-2016.)

11.77.080 Penalties.

Any person who is determined to have violated any provision of this section shall be fined not less than one hundred dollars ($100.00) for the first conviction; not less than two-hundred fifty dollars ($250.00) for the second conviction; and five hundred dollars ($500.00) for each subsequent conviction. The Department may choose to utilize the provisions of Chapter 11.95 for administrative citations to enforce the provisions of this section. (1994 C., § 11.77.080; Ord. No. 70400, § 1, 11-23-2016.)

11.77.090 Use of smokeless tobacco, alternative nicotine products or vapor products at professional, collegiate, high school and organized amateur sporting events.

A. Definitions.

1. "Alternative nicotine product" means any noncombustible product containing nicotine that is intended for human consumption, whether chewed, absorbed, dissolved or ingested by any other means. The term does not mean any vapor product, tobacco product or any product regulated as a drug or device by the

United States Food and Drug Administration under Chapter V of the Food, Drug and Cosmetic Act or any amendment thereto.

2. "Event site for professional collegiate, high school or organized sporting events" means the entire physical area in which such sporting events occur. The event site for such sporting events shall include all open, semi-open and enclosed spaces and structures, including, but not limited to, playing fields, dugouts, bullpens, training rooms, locker rooms, team bench areas, spectator seating areas, pedestrian walkways, bathrooms, dining areas, vendor areas, offices, recreational areas and stadium parking lots.

3. "Professional, collegiate, high school or organized sporting events" means:

a. The following games or other athletic competitions: baseball, softball, football, basketball, hockey, track and field, field hockey and soccer; or

b. An event involving a game or other athletic competition organized by a league or association of persons described by Subsection 3.a.

4. "Smokeless tobacco" means any product that contains cut, ground, powdered, or leaf tobacco and is intended to be placed in the oral or nasal cavity, including, but not limited to, snuff, chewing tobacco, dipping tobacco, dissolvable tobacco products and snus.

5. "Vapor product" means any non-combustible product with or without nicotine that employs a heating element, power source, electronic circuit or other electronic, chemical means, regardless of shape or size, which can be used to produce vapor with nicotine in a solution or other form. The term includes any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe or similar product or device, and any vapor cartridge or other container of nicotine in a liquid solution or other form that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe or similar product or device. The term does not include alternative nicotine or tobacco products.

B. Prohibition on use of smokeless tobacco, alternative nicotine products or vapor products at professional, collegiate, high school and organized sporting event sites.

No person shall use or display smokeless tobacco, alternative nicotine products or vapor products at an event site for a professional collegiate, high school or organized, sporting event.

C. Signage. Each event site for a professional, collegiate, high school or organized sporting event shall have posted at every entrance a conspicuous sign clearly communicating that the use or display of smokeless tobacco, alternative nicotine products and vapor products is prohibited. Such signs shall also be posted in all dugouts, bullpens, training rooms, locker rooms, press boxes, television and radio broadcast booths and bathrooms.

D. Penalties. Each incident of use or display of smokeless tobacco, alternative nicotine products or vapor products in violation is a violation of this chapter and each person who is determined to be in violation shall be fined not less than one hundred dollars ($100.00) for the first offense; not less than two hundred fifty dollars ($250.00) for the second offense; and five hundred dollars ($500.00) for any subsequent offense. Each failure by an event site for a professional, collegiate, high school or organized sporting events to post the signage as required by this chapter shall be subject to a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00). Each day of failure to post signage as required by this chapter after written notice shall constitute a separate failure to post.

E. Enforcement.

1. The Department of Health of the City of St. Louis may engage in activities calculated to measure and ensure compliance with this section. Private organizations and individuals, as may be designated by the Department of Health, may engage in such to measure and ensure compliance with the provisions of this section when such activity is authorized and approved by the Department of Health.

2. The authority to enforce the provisions of this section is vested in the Department of Health and in the St. Louis Metropolitan Police Department.

3. The Department of Health may choose to utilize the provisions of Chapter 11.95 for administrative citations to enforce the provisions of this section. (1994 C., § 11.77.090; Ord. No. 70516, §§ 1—5, 2-23-2017.)

Chapter 11.78

LASER BEAMS

Sections:

11.78.010	**Harassment prohibited.**
11.78.020	**Sale to minors prohibited—Exception.**

11.78.030 Possessing by minors prohibited—Exception.

11.78.040 Penalty for violation.

11.78.010 Harassment prohibited.

It shall be unlawful for any person to focus, point or shine a laser beam directly or indirectly on another person or animal in such a manner as to harass, annoy or injure such person or animal. (1994 C., § 11.78.010; Ord. No. 64667, § 1, 1999.)

11.78.020 Sale to minors prohibited—Exception.

It shall be unlawful to sell, distribute, barter, give away or otherwise grant possession of a laser pointing device to any person under the age of eighteen years unless such laser pointing device is necessary for such person's employment, trade or occupation. (1994 C., § 11.78.020; Ord. No. 64667, § 2, 1999.)

11.78.030 Possessing by minors prohibited—Exception.

It shall be unlawful for any person under the age of eighteen years to possess a laser pointing device unless such laser pointing device is necessary for such person's employment, trade or occupation and it is necessary for the laser pointing device to be carried by such person. (1994 C., § 11.78.030; Ord. No. 64667, § 3, 1999.)

11.78.040 Penalty for violation.

A. Any person found guilty of a violation of Section 11.78.010 or 11.78.030 of this chapter shall be fined an amount of not less than $50.00 nor more than $500.00 or sentenced to a period of confinement not to exceed 90 days or assessed both a fine and a period of confinement.

B. Any person found guilty of a violation of Section 11.78.020 this chapter shall be fined an amount of not less than $250.00 nor more than $500.00 or sentenced to a period of confinement not to exceed 90 days or assessed both a fine and a period of confinement. (1994 C., § 11.78.040; Ord. No. 64667, § 4, 1999.)

Chapter 11.79

SWIMMING POOL REGULATIONS

Sections:

11.79.010 Definitions.

11.79.020 Rules and regulations.

11.79.030 Plans and specifications approval.

11.79.040 Detailed plans.

11.79.050 Operation.

11.79.060 Operating records.

11.79.070 Inspections.

11.79.080 Variance.

11.79.090 General sanitary standards.

11.79.100 Swimmer loading.

11.79.110 Pool construction materials.

11.79.120 Floor slopes.

11.79.130 Pool water depths.

11.79.140 Diving pool water depth.

11.79.150 Ladders, recessed steps, and stairs.

11.79.160 Decks.

11.79.170 Drainage.

11.79.180 Hose bibs.

11.79.190 Outside curb.

11.79.200 Fencing.

11.79.210 Adjacent areas.

11.79.220 Pool concessions.

11.79.230 Location of depth markings.

11.79.240 Size of depth markings.

11.79.250 Lighting and electrical requirements.

11.79.260 Inlets.

11.79.270 Outlets.

11.79.280 Perimeter overflows.

11.79.290 Skimmers.

11.79.300 Recirculating system.

11.79.310 Sand filters.

11.79.320 Diatomaceous earth filters.

11.79.330 Disinfection.

11.79.340 pH Control.

11.79.350 Testing equipment.

11.79.360 Safety requirements—Lifesaving equipment.

11.79.370 Swimmer preparation facilities.

11.79.380 Shower facilities.

11.79.390 Toilets.

11.79.400 Wading pool.

11.79.410 Spray pools.

11.79.420 Swimming pool operation.

11.79.430 Treatment facility operation.

11.79.440 Records.

11.79.450 Supervision of swimmers.

11.79.460 Personnel regulations.

11.79.470 Suits and towels.
11.79.480 Special requirements for indoor swimming pools.
11.79.490 Spas.
11.79.500 Penalty.

11.79.010 Definitions.

For the purpose of this chapter the following words shall have the following meanings:

A. "Health Commissioner" means the Health Commissioner or the Health Commissioner's designated agent.

B. "Nonresidential swimming pool" means any artificial body of water, wading pool, or spray pool and auxiliary structures, including dressing rooms and locker rooms, toilet, showers, and other areas and enclosures that are intended for the use of persons using the pool; but does not include pools and auxiliary structures and equipment located on private property with four (4) or less dwelling units under the control of the owner or lessee and intended only for the use of the owner or residents and their guests.

C. "Person" means any individual, firm, partnership, association, corporation, company, governmental agency, club or organization of any kind. (1994 C., § 11.79.010; Ord. No. 65567, § 1, 2002.)

11.79.020 Rules and regulations.

The Health Commissioner shall promulgate rules and regulations to carry out the purpose and intent of these regulations. The intent of these regulations shall be to ensure a clean, healthful, and safe environment at all nonresidential swimming pools (hereafter referred to as "swimming pools") as shall be constructed, remodeled or operated within the City of St. Louis, Missouri. The rules and regulations may provide:

A. The minimum sanitary requirements for the design, equipment, maintenance and operation of swimming pools.

B. The minimum number of lifeguards and attendants required to be in attendance at any swimming pool except that rules and regulations pertaining to lifeguards and attendants shall not be applicable to pools having less than 2,500 square feet of water surface or to pools and auxiliary structures and equipment at residences with four (4) or less dwelling units.

C. The qualifications of any lifeguard or attendant at any swimming pool.

D. The minimum safety facilities and apparatus to be installed and maintained at any swimming pool.

E. The maximum bathing load of any swimming pool.

F. The minimum sanitary standard of operation for any wading pool or spray pool.

G. The data to be submitted with any application for construction, alteration, extension or modification of swimming pools and to provide the manner and terms upon which such approval shall be granted or modified.

Any rule or regulation shall meet the minimum standards of the Missouri Division of Health, but nothing herein shall prevent the Health Commissioner from requiring compliance with such higher standards as are essential to maintain a sanitary condition. (1994 C., § 11.79.020; Ord. No. 67698, § 1, 2007; Ord. No. 65567, § 2, 2002.)

11.79.030 Plans and specifications approval.

All reports, plans and specifications for swimming pools shall be submitted at least fourteen (14) days prior to the date upon which action by the Health Division is desired. No swimming pool shall be constructed, altered, remodeled or renovated unless and until plans, specifications and additional information relating to such swimming pool, as may be requested by the Health Commissioner shall be submitted to said Health Commissioner and after review by said Health Commissioner found to comply with the minimum sanitary requirements provided under Section 11.79.010 and written approval, for construction, alteration, extension or modification of the swimming pool, issued by said Health Commissioner. The review of the plans by the Health Commissioner shall relate only to ensuring adequate protection to the public health. Any such swimming pool, approved by the Health Commissioner, shall be constructed, altered, extended or modified in accordance with the provisions of the Building and Plumbing Codes of the City of St. Louis. (1994 C., § 11.79.030; Ord. No. 65567, § 3, 2002.)

11.79.040 Detailed plans.

All detailed plans shall be prepared on blue or white prints and shall be drawn to a suitable scale. The detailed plans for pools shall show:

A. A plot of the property to be used for location of the swimming pool, indicating the topography and the arrangement of present and proposed facilities.

B. Complete construction details, including elevations and cross sections for all units.

C. Schematic diagrams of the pool purification system.

D. Detailed plans for all piping including elevations.

E. Plans shall be accompanied by completed application forms as prescribed and furnished by the Health Division. (1994 C., § 11.79.040; Ord. No. 65567, § 4, 2002.)

11.79.050 Operation.

Any swimming pool shall have such equipment and shall be so operated as to comply with minimum sanitary requirements provided under Section 11.79.010. No swimming pool shall be opened for use until the Health Division has been notified in writing at least ten working days prior to the date of opening and the pool has been found to comply with the minimum sanitary requirements provided under Section 11.79.010 of these regulations. All swimming pools located within the City of St. Louis, Missouri, which are not in compliance with these regulations at the time of enactment shall be exempt from compliance with those provisions which do not pertain directly to health and safety of users and the general public. (1994 C., § 11.79.050; Ord. No. 65567, § 5, 2002.)

11.79.060 Operating records.

Any person owning, operating or maintaining a swimming pool shall keep an accurate record of pool operations as provided for on the Health Division's pool operator's weekly report sheet and submit such records to the Health Division with any other additional information regarding the pool which may be required. (1994 C., § 11.79.060; Ord. No. 65567, § 6, 2002.)

11.79.070 Inspections.

The Health Commissioner shall make such inspections as may be necessary of any swimming pool and collect and analyze samples to determine that the water shall be of satisfactory bacterial, chemical and physical quality as frequently as may be necessary to ensure compliance with the minimum sanitary requirements of these rules and regulations or any rule or regulation hereunder. (1994 C., § 11.79.070; Ord. No. 65567, § 7, 2002.)

11.79.080 Variance.

Swimming pools shall be constructed, remodeled, or operated in compliance with the provisions of these regulations, except that an applicant may request and the Health Division may grant a variance in those cases where it is determined that strict compliance would cause unusual difficulties or hardships and that the variance would not affect the healthful operation of the swimming pool. Before granting a variance, the Health Division shall require adequate proof from the applicant that the requested variance will comply with the basic intent of these regulations and that no health hazard would be created if the variance is granted. It does not include normal maintenance and repair or the replacement of equipment which had been previously approved, provided that the type, size or operating characteristics of the replacement equipment is equivalent of that previously approved. (1994 C., § 11.79.080; Ord. No. 65567, § 8, 2002.)

11.79.090 General sanitary standards.

In control of swimming pool sanitation certain broad principles apply to all indoor and outdoor pools.

A. All public and semi-public swimming pools, both interior and outdoor, shall be under the sanitary control of the Health Division.

B. The same standards of cleanliness and bacterial purity of water and the same precautions against the possible spread of disease shall apply at both indoor and outdoor swimming pools.

C. At swimming pools, sanitary standards shall apply to bathing houses, dressing rooms, toilet facilities, and the handling and care of bathing suits, towels, and other articles of bathing apparel.

D. The common use of towels, drinking cups, combs, hair brushes and other toilet articles shall be strictly prohibited.

E. The water supply for all shower, lavatory, and drinking water facilities as adjuncts to the swimming area shall meet all bacteriological standards for safe drinking water.

F. All equipment installed for the proper operation of the swimming pool shall have been approved for swimming pool use by the National Sanitation Foundation or an equivalent testing facility.

G. Animals not specifically authorized by the Health Division shall not be within the pool enclosure.

H. There shall be no direct physical connection between the sewerage system and the pool drain or

recirculation system. A six (6) inch air gap shall be provided to ensure there is no backflow of sewage or waste water into the pool or pool piping system. Any swimming pool water discharged to the sewer system shall be discharged to a public sewer system.

I. All portions of the water distribution system serving the swimming pool and auxiliary facilities shall be protected against backflow. (1994 C., § 11.79.090; Ord. No. 65567, § 9, 2002.)

11.79.100 Swimmer loading.

Designation of Area. For the purposes of computing swimmer capacity for design, those portions of the pool four feet or less in depth shall be designated "non-swimmer" areas. Portions of the pool over four feet in depth shall be designated as the swimming area. Pool areas shall be determined as follows:

A. Ten (10) square feet of pool surface shall be provided for each non-swimmer expected in the water at time of maximum load.

B. Twenty-four (24) square feet of pool area shall be provided for each swimmer expected in the water.

C. Three hundred (300) square feet of pool area shall be reserved around each diving board or diving platform and this area shall not be included in computing the area of the swimming section. Twenty (20) persons is the maximum number allowed for the area within a ten (10) foot radius of each diving board or platform. (1994 C., § 11.79.100; Ord. No. 65567, § 10, 2002.)

11.79.110 Pool construction materials.

A. *Materials.* Swimming pools shall be constructed of materials which are inert, nontoxic, impervious, permanent, and enduring, which will provide a tight tank with a smooth and easily cleaned surface, or to which a smooth, easily cleaned surface can be applied.

B. *Fillet.* All corners formed by intersection of walls and floors should be rounded.

C. *Pervious Bottoms Prohibited.* Sand or earth bottoms are not permitted in pool construction.

D. *Finish.* Bottom and sides must be of white or light color. (1994 C., § 11.79.110; Ord. No. 65567, § 11, 2002.)

11.79.120 Floor slopes.

A. All slopes shall be uniform.

B. The slope of the floor from the shallow end wall towards the deep end shall not exceed one (1) foot in twelve (12) feet to the point of the first slope change.

C. The point of the first slope change shall be defined as the point at which the floor slope exceeds one (1) foot in twelve (12) feet.

D. The slope of the floor from the point of the first slope change to the deep end shall not exceed one (1) foot in three (3) feet. Such slopes are not intended to provide any less water depth than those specified if the pool is intended for diving.

E. The transitional radius from wall to floor where floor slopes join the wall shall comply with the following:

1. The radius shall have its center no less than two (2) feet nine (9) inches below the waterline in deep areas or two feet six inches (2'6″) in the shallow area.

2. The radius shall be tangent at the point where the radius either meets the wall or the floor.

3. The radius shall be at least equal to, or greater than, the depth of the pool minus the vertical wall depth measured from the waterline minus three inches (-3″) to allow draining to the main drain.

R minimum = Pool depth - Vertical Wall Depth minus three inches (-3″). (1994 C., § 11.79.120; Ord. No. 65567, § 12, 2002.)

11.79.130 Pool water depths.

A. Water depths at the shallow end of the swimming area shall be three (3) feet minimum, with a three (3) feet six (6) inches minimum for racing pools. Exceptions may be made in a recessed area of the main swimming pool, outside of the competitive and/or swimming course, when the pool is an irregular shape with the permission of the Health Commissioner.

B. The beginner's area of a pool shall be visually set apart from, but may be adjoined to, the shallow area and not adjoin the deep area.

C. The transition point of the pool from the beginners' area to the shallow area and from the shallow area to the deep area shall be visually set apart with a rope and float line, depth markers, and a four (4) inch minimum width row of floor tile, painted line, or similar means of color contrasting with the bottom. In diving pools with a constant slope, the shallow area shall be visually set apart from the deep area with a rope and float line, depth markers, and a four (4) inch minimum width row of floor tile, painted line, or similar means of a color contrasting with the bottom.

D. Pools intended for competitive diving and swimming shall be designed and constructed so as to provide the water depths specified by Federation Internationale

de Natation Amateur (F.I.N.A.), U.S. Swimming, and U.S. Diving. (1994 C., § 11.79.130; Ord. No. 65567, § 13, 2002.)

11.79.140 Diving pool water depth.

A. Diving pools shall conform to the minimum water depths, areas, slopes, and other dimensions shown on page 7a. If a wall exists then it shall conform with the 3:1 in the Point D dimension and the L 1-2-3-4 dimensions.

B. When diving equipment is installed, it shall be located in the diving area of the pool to provide the minimum dimensions as shown on page 7a.

C. The tip of the diving equipment shall be located at Point A, which is the reference point of all other dimensions.

D. There shall be completely unobstructed clear vertical distance of thirteen (13) feet above any diving board measured from the center of the front end of the board. This area shall extend horizontally at least eight (8) feet behind, eight (8) feet to each side and sixteen (16) feet ahead of Point A.

E. Pools with diving facilities in excess of three (3) meters in height, or pools designed for platform diving, shall comply with the dimensional design requirements of F.I.N.A., U.S. Diving, and National Federation of State High School Associations (NFSHSA). (1994 C., § 11.79.140; Ord. No. 65567, § 14, 2002.)

11.79.150 Ladders, recessed steps, and stairs.

A. *Location.* Steps or ladders shall be provided to serve the shallow and deep portions of the pool, and if the pool is over thirty (30) feet wide, such steps or ladders shall be installed on each side. Stairs, ladders, and recessed steps should be located so as not to interfere with racing lanes or with diving.

B. *Stairs.* Stairs leading into pools shall have a minimum tread of twelve (12) inches and a maximum rise not to exceed ten (10) inches. There shall be no abrupt drop-off or submerged projections into the pool, unless guarded by handrails.

C. *Ladders.* Pool ladders shall be corrosive resistant and shall be equipped with non-slip treads. All ladders shall be designed to provide a handhold and shall be rigidly installed. There shall be a clearance of not more than six (6) inches nor less than three (3) inches between the ladder and the pool wall.

D. *Step-holes.* If step-holes are inserted into the walls or if step-holes are provided, they shall be of such design that they may readily be cleaned and shall be arranged to drain into the pool to prevent the accumulation of dirt. Step-holes shall have a minimum tread of five (5) inches and a minimum width of fourteen (14) inches.

E. *Handrails.* Where stairs, step-holes, or ladders are provided within the pool, there shall be a handrail at the top of both sides thereof extending over the coping or edge of the deck.

F. *Steps and Guard Rails for Diving Boards.* Supports, platforms, and steps for diving boards shall be of substantial construction and of sufficient strength to safely carry the maximum anticipated loads. Steps shall be of corrosive-resistant material, easily cleanable, and of non-slip design. Handrails shall be provided at all steps and ladders leading to the diving boards which are one (1) meter above the water. Platforms and diving boards which are one (1) meter or more high, shall be protected with guard railings. (1994 C., § 11.79.150; Ord. No. 65567, § 15, 2002.)

11.79.160 Decks.

A. A deck shall entirely surround the pool. It shall be not less than four (4) feet wide at indoor pools and should not be less than eight (8) feet wide at outdoor pools. The deck shall be of uniform, easily cleaned, impervious material; and of non-slip construction.

B. Pool Edges. The edge of the pool should be rounded at its junction with the deck, and shall be shaped to provide an adequate hand hold.

C. Slope. The deck shall have a slope of not less than three (3) inches in ten (10) feet. (1994 C., § 11.79.160; Ord. No. 65567, § 16, 2002.)

11.79.170 Drainage.

A. In no instance shall the walks or walk drains drain directly to the pool. Pool walks shall slope in a direction away from the pool but shall not drain in such a manner as to cause standing water.

B. Adequate and properly located deck drains are necessary where pool decks slope away from the pool edge.

C. The drainage shall not be discharged into the pool recirculation system.

D. There shall be no direct connection between pool walk drains and the sanitary sewer system. (1994 C., § 11.79.170; Ord. No. 65567, § 17, 2002.)

11.79.180 Hose bibs.

Sufficient hose connections of five-eighths (⅝) inch size, served by at least a three-fourths (¾) inch pipe,

shall be located to effectively flush all areas of the pool. (1994 C., § 11.79.180; Ord. No. 65567, § 18, 2002.)

11.79.190 Outside curb.

A curb, at least four (4) inches high, should be provided on the outside of the deck area to prevent spectators' litter from being kicked onto the deck or to prevent surface water from flowing onto the deck. (1994 C., § 11.79.190; Ord. No. 65567, § 19, 2002.)

11.79.200 Fencing.

An effective fence or barrier of at least four (4) foot in height, including gates, shall be provided on the outside of the deck area to prevent unauthorized entrance by spectators. All entrances (gates) shall be self-closing and self-latching. Picket type fences and gates such as wrought iron or wood shall have openings between uprights no greater than four (4) inches. (1994 C., § 11.79.200; Ord. No. 65567, § 20, 2002.)

11.79.210 Adjacent areas.

Pools shall not be constructed with areas of sand, grass or shrubbery within the pool enclosure. Potted plants may be authorized provided they are maintained at a distance in excess of eight (8) feet from the water. (1994 C., § 11.79.210; Ord. No. 65567, § 21, 2002.)

11.79.220 Pool concessions.

There must be a complete separation between areas where food and drink are served and areas used by swimmers. Concession facilities available only to spectators shall be separated from the pool deck and areas accessible to swimmers by a fence at least six (6) feet high. Where concessions are in the pool area and available to swimmers, the following facilities shall be provided.

A. Adequate safeguards to ensure that food and drink are not taken or passed from the concession area to the pool area, except when delivered to a table by establishment personnel.

B. In cases where personal service is provided by the establishment, food and/or drink may not be consumed or served within eight (8) feet of the water's edge.

C. Drinks shall not be served in glass containers. Plastic containers if utilized, shall be of dark color. Glass of any type, unless specifically authorized by the Department of Health, shall not be in the pool enclosure. (1994 C., § 11.79.220; Ord. No. 65567, § 22, 2002.)

11.79.230 Location of depth markings.

Depth of water shall be plainly marked at or above the water surface on the vertical pool all and on the edge of the deck next to the pool, at maximum and minimum points and at the points of break between the deep and shallow portions and at intermediate one (1) foot increments of depth, spaced at not more than twenty five (25) foot intervals measured peripherally. The depth in the diving areas shall be appropriately marked. (1994 C., § 11.79.230; Ord. No. 65567, § 23, 2002.)

11.79.240 Size of depth markings.

Depth markings shall be in numerals of four (4) inches minimum height and a color contrasting with background. Where depth markings cannot be placed on the vertical walls above the water level, variations will be considered, said markings to be plainly visible to persons in the pool. (1994 C., § 11.79.240; Ord. No. 65567, § 24, 2002.)

11.79.250 Lighting and electrical requirements.

A. *Underwater Lighting.* Where night swimming is permitted, underwater lighting shall be provided. Not less than zero point five (0.5) watts shall be employed per square foot of pool area. Such lights shall be spaced to provide illumination so that all portions of the pool and pool bottom may be plainly visible to persons in the pool.

B. *Area Lighting.* Where night swimming is permitted, area lighting shall be provided for the deck areas and directed toward the deck areas and away from the pool surface in so far as practical in a total capacity of not less than zero point six (0.6) watts per square foot of deck area.

C. *Wiring.* All wiring for swimming pool lighting or power shall conform to Article 680 of the National Electrical Code of the National Fire Protection Association.

D. *Overhead Clearance.* All overhead electrical wiring shall conform to Article 680 of the National Electrical Code of the National Fire Protection Association. (1994 C., § 11.79.250; Ord. No. 65567, § 25, 2002.)

11.79.260 Inlets.

A. *Number of Inlets.* Multiple inlets must be provided; so spaced that each inlet will serve a linear distance of not more than fifteen (15) feet, however, if directional inlets are used, the number of inlets shall be

based on either one (1) inlet per six hundred square feet of pool area or one inlet per fifteen thousand gallons of pool capacity, whichever is greater.

B. *Orifice Design.* Each inlet shall be designed as an orifice subject to adjustment or with an individual gate valve to permit adjustment of water volume. Discharge velocity must be sufficient to ensure distribution of disinfectant residual throughout the pool. (1994 C., § 11.79.260; Ord. No. 65567, § 26, 2002.)

11.79.270 Outlets.

A. *Size and Location.* All pools shall be provided with an outlet at the deepest point openings must be covered by a proper grating which is not readily removable by swimmers. Total outlet opening area of the grating in the floor of the pool shall be at least eight (8) times the area of the discharge pipe. The maximum width of grate openings shall be one half (½) inch. The outlet of the pool should be plainly marked by a black or dark colored circle, unless the outlet grating is of conspicuous coloring.

B. *Number of Outlets.* When a pool is more than thirty (30) feet wide, multiple bottom outlets shall be provided for the deepest longitudinal cross-section. In such cases, outlets shall be spaced not more than thirty (30) feet apart, nor more than fifteen (15) feet from the side walls. (1994 C., § 11.79.270; Ord. No. 65567, § 27, 2002.)

11.79.280 Perimeter overflows.

Current pool design provides that overflow gutters serve as collection channels for the recirculation system.

A. *When Required.* Perimeter Overflows shall be required on all pools having a surface area of over two thousand (2,000) square feet. (Pools having a surface area of less than two thousand (2,000) square feet or less shall be provided either with perimeter overflows or skimmers.)

B. *Design.* All Perimeter Overflow systems shall extend completely around the pool, except at steps or recessed ladders in the shallow portion and shall be level to a tolerance of one-fourth (¼) inch. The perimeter overflow shall be capable of continuously removing at least one hundred percent of the recirculated water and returning it to the filter. All perimeter overflows shall be connected to the recirculation system through a properly designed surge tank. The perimeter overflow, drains, and return piping to the surge tank shall be designed to rapidly remove overflow water caused by recirculation displacement, wave action, or other causes produced from the maximum pool bathing load. (Open channels, if provided, shall be designed to prevent entrance or entrapment of swimmers' arms or legs.) The overflow edge or lip shall be rounded and not thicker than two and one half (2½) inches for the top two (2) inches. If multiple outlets are provided they shall be spaced at least every fifteen (15) feet and connected to an outlet pipe or pipes at least two and one half (2½) inches in diameter. The outlet fitting shall have a clear opening in the grating at least equal to one and one half (1½) times the cross-sectional area of the outlet pipe. Piping connections must be provided to permit water to flow from overflow channels to waste, as well as to the recirculating system.

C. *Alternate Design.* Nothing in this section shall preclude the use of roll-out or deck level type pools. Such designs shall provide for one hundred percent recirculation return through the flumes at design flow rate. The design of the curb and handhold shall conform to accepted standards, and approval shall be based on detailed review of this feature of construction and evaluated in the light of proposed use of the pool.

D. *Surge Capacity.* All overflow gutters shall be connected to the recirculation system with a total surge capacity of not less than one (1) gallon per square foot of pool surface area. Each surge system shall be provided with an overflow drain and a means for draining and cleaning.

E. *Water Level Control.* Facilities capable of maintaining a water level sufficient to provide continuous skimming when pool is not in use shall be provided. (1994 C., § 11.79.280; Ord. No. 65567, § 28, 2002.)

11.79.290 Skimmers.

The use of skimmers will be permitted under the following conditions:

A. *Location, Installation, Handholds, etc.* Skimmers are permitted on swimming pools with not more than two thousand (2,000) square feet of surface area, provided approved handholds are installed and sufficient motion to the pool water is induced by the pressure return inlets. The required skimmers shall be located not more than thirty (30) feet apart measured horizontally. Handholds shall consist of coping not over two and one-half (2½) inches for the outer two (2) inches or an equivalent approved handhold. The handholds must be no more than six (6) inches above the normal water line. Skimming devices shall be built

into the pool wall and shall develop sufficient velocity on the pool water surface to induce floating oils and wastes into the skimmer from the entire pool area.

B. *Capacity.* The piping and other pertinent components of skimmers shall be designed for a total capacity of one hundred percent of the required filter flow of the recirculation system and no skimmer shall be designed for a flow through rate of less than thirty (30) gallons per minute per foot of weir length.

C. *Design.* The skimmer weir shall be automatically adjustable and shall operate freely with continuous action to variations in water level over a range of at least four inches (4). The weir shall operate at all flow variations as described in Section 11.79.280. The weir shall be of such buoyancy and design so as to develop an effective velocity.

D. *Screen.* An easily removable and cleanable basket or screen through which all overflow water must pass shall be provided to trap large solids. Spare screens or baskets shall be readily available.

E. *Relief Line.* The skimmer may be provided with a device to prevent air-lock in the suction line. If an equalizer pipe is used it shall provide an adequate amount of water for pump suction, should the water of the pool drop below the weir level. If any other device or arrangement is used, a sufficient amount of water for pump suction shall be assured.

F. *Material.* The skimmer shall be of sturdy, corrosion-resistant materials. (1994 C., § 11.79.290; Ord. No. 65567, § 29, 2002.)

11.79.300 Recirculating system.

A recirculation system consisting of pumps, piping, filters, water conditioning and disinfecting equipment, and other accessory equipment, shall be provided which will clarify and disinfect the swimming pool volume of water in six (6) hours or less, thus providing a minimum turnover of at least four (4) times in twenty four (24) hours when operating at designed maximum head loss. The recirculation system shall operate continuously twenty-four (24) hours a day.

A. *Rate.* The recirculation system shall be capable of clarifying and disinfecting the pool volume of water in six (6) hours or less, thus providing a turnover of at least four (4) times in twenty-four (24) hours. A turnover each four (4) hours, or six (6) times in each twenty-four (24) hour period is recommended. The turnover rate shall be maintained up to and including the time at which the filter needs to be backwashed. Pools built for diving only may be designed for an eight (8) hour turnover rate.

B. *Hydraulics and Piping System.* All piping shall be designed to reduce friction losses to a minimum and to carry the required quantity of water at a maximum velocity not to exceed eight (8) feet per second for pressure, six (6) feet per second for suction and four (4) feet per second for gravity. All piping shall be of non-toxic material resistant to corrosion and able to withstand operating pressures. Flange joints or unions should be inserted at intervals to permit take down and cleaning. A blow-off shall be provided for the collection of samples of recirculated and treated water. All piping and valves should be identified by color code or tag.

C. *Hair Strainer.* The recirculation system shall include a strainer to prevent hair, lint, etc., from reaching the pump and filters. Strainers shall be corrosion-resistant with openings not more than one-eighth (⅛) inch in size and the total area of the openings shall be ten (10) times the area of the inlet pipe. The strainer shall be readily accessible to frequent cleaning. Spare screens or baskets shall be readily available.

D. *Vacuum System.* Equipment should be provided to remove sludge, sediment and other accumulations from the bottom of the pool. A built-in vacuum system is preferred, but portable equipment will be accepted. Vacuum pipes must have a minimum diameter of one and one-half (1½) inches and vacuum hoses one and one-half (1½) inches. A valve or other regulating device should be provided to reduce flow from the pool outlet when the vacuum system is in use.

E. *Flow Measurement.* A rate-of-flow indicator, reading in gallons per minute, shall be installed and located so that the rate of circulation and backwash rate will be indicated. The indicator shall be accurate within ten (10) percent of true flow and installed per manufacturer's instructions.

F. *Pump Selection.* Pumps shall be of adequate capacity to provide the required number of turnovers of pool water as specified in Section 11.79.290. If the pump or suction piping is located above the overflow level of the pool, the pump shall be self priming. The pump or pumps shall be capable of providing flows and pressures adequate for the backwashing of filters. The pump suction header shall be provided with gauges which indicate both pressure and vacuum and a pressure gauge shall be installed on the pump discharge line. These shall be installed on the pump discharge line

these shall be installed as near to the pump inlet as possible. The backwash pump must have sufficient capacity to backwash a filter unit at the prescribed rate. A pump curve shall be provided as part of the pump specifications. A separate system must be used for each pool, i.e., diving, swimming, or wading unless adequate provisions are made to assure the minimum prescribed turnover.

G. *Thermometer.* Pools equipped with heaters shall have a fixed thermometer in the recirculation line beyond the heater and another near the outlet of the pool.

H. *Backwash Water.* All wastewater generated from the backwashing of filtration systems shall be discharged as an indirect waste to a sanitary sewer. An air gap of six (6) inch minimum height shall be utilized. Discharge to other than the sanitary sewer may be allowed under extraordinary circumstances. (1994 C., § 11.79.300; Ord. No. 65567, § 30, 2002.)

11.79.310 Sand filters.

Sand filtration units are acceptable in swimming pool recirculation systems. The three types now permitted are rapid flow, gravity, and high rate. Rapid flow pressure sand filter systems shall be provided with the following:

A. Filter Tanks. Three (3) or more filters arranged in parallel are preferable to a single unit. If a single unit is used, adequate backwash capacity must be provided.

B. Filter Area. Sufficient filter area must be provided to filter the entire contents of the pool in six (6) hours or less at the rate of not more than three (3) gallons per square foot per minute.

C. Gravel. When a standard type under drain system is used, the gravel bed must be at least eighteen (18) inches in depth and vary in gravel size from approximately one and one-half (1½) inches at the bottom to one-eight (⅛) inch at the top.

D. Filter Media. The filter media must not be less than twenty-four (24) inches deep and the effective grain size must be between 0.40 and 0.50 millimeters. The uniformity coefficient must not exceed 1.65. Sand should be washed free from clay, organic matter, soluble material, and consist of suitable grades of screened sharp sand. The filter media shall meet the filter manufacturer's recommended grain sizing and coefficient indexes. Other materials will be given consideration.

E. Vertical side wall freeboard of eighteen (18) inches above the surface of the filter material. A minimum side wall height of five (5) feet shall be provided below the convex top. Where specially designed and approved distribution facilities are utilized a corresponding reduction in the side wall height may be used.

F. A readily removable head or large manhole with sufficient working space about the filter unit to facilitate inspection and repairs.

G. Gauges for each battery on the inlet and outlet pipes for determining loss-of-head in the filter media.

H. An air release system must be provided for each filter.

I. A sight glass must be installed on the waste discharge pipe unless the wash-water discharge is plainly visible. Such sight glass shall be of a readily removable type to permit cleaning.

Gravity flow sand filter systems shall be provided with the following:

A. Three (3) or more filter cells arranged in parallel.

B. Filter Area. Sufficient filter area must be provided to filter the entire contents of the pool in six (6) hours or less at the rate of not more than two (2) gallons per square foot per minute.

C. Gravel. When a standard type of underdrain system is used, the gravel bed must be at least eighteen (18) inches in depth and vary in gravel size from approximately one and one-half (1½) inches at the bottom to one-eighth (⅛) inch at the top.

D. Filter Media. The filter media must not be less than twenty-four (24″) inches deep and the effective grain size must be between 0.40 and 0.50 millimeters. The uniformity coefficient must not exceed 1.65. Sand should be washed free from clay, organic matter, soluble material, and consist of suitable grades of screened sharp sand. The filter media shall meet the filter manufacturer's recommended grain sizing and coefficient indexes. Other materials will be given consideration.

E. Vertical side wall freeboard of eighteen (18) inches above the surface of the filter material to the rim of the overflow troughs to permit proper washing. Overflow to prevent water from rising above the walls of the filter. A curb installed around the filter to prevent floor wash from entering the filter.

F. Sufficient head room to permit inspection and operation where the filter is covered by a superstructure.

G. A compound gauge between the pump strainer and the pump which will indicate both positive and negative head.

High rate sand filter systems shall be provided with the following:

A. One Properly Sized Filter is Acceptable. When two (2) or more units are arranged in parallel, provision should be made whereas no single unit would take the total pump discharge, particularly during the backwash cycle.

B. Filter Area. Sufficient filter area must be provided to filter the entire contents of the pool in six (6) hours or less at a rate no greater than fifteen (15) gallons per minute per square foot.

C. Media Support. Where gravel is utilized to support the filter media, it shall be clean, hard, rounded material to meet the requirements of the manufacturer.

D. Filter media depth must not be less than twenty (20) inches. The effective grain size must be between 0.39 and 0.45 millimeters. The uniformity coefficient must not exceed 1.40. Sand must be washed free from clay, organic matter, soluble material, and consist of suitable grades of screened sand. The filter media shall meet the filter manufacturer's recommended grain sizing and coefficient indexes. Other materials will be given consideration.

E. Vertical freeboard of at least eighteen (18) inches above the surface of the filter media to the lowest portion of the distributor pipe or collector piping which serve as overflows during backwash.

F. A readily removable head or large manhole with sufficient working space about the filter unit to facilitate inspection and repairs.

G. An air release system must be provided for each filter.

H. Sight glass installed on the waste discharge pipe unless the backwash water is plainly visible. Such sight glass shall be readily removable to permit cleaning.

I. Gauges for each filter on the inlet and outlet pipes for determining loss of head in the filter media.

J. Filter unit shall have been tested and approved by a nationally recognized testing laboratory to function satisfactorily at the rate or rates specified. (1994 C., § 11.79.310; Ord. No. 65567, § 31, 2002.)

11.79.320 Diatomaceous earth filters.

Diatomaceous earth filtration units are acceptable in swimming pool recirculation systems. The two types permitted are pressure and vacuum.

Pressure Diatomaceous Earth Filters.

A. Filter Area. Sufficient filter area must be provided to filter the entire contents of the pool in six (6) hours or less at the rate of not more than two (2) gallons per minute per square foot of filter area with continuous body feed or at the rate of not more than one and one-half (1½) gallons per minute per square foot without continuous body feed.

B. Filter Elements. The filter element and septum shall be constructed and installed to adequately resist significant deformation, rupture or dislocation with the maximum differential pressure between influent and effluent developed by the pump during filtering and/or backwashing operation.

C. Pre-coating. Provision shall be made to introduce a precoat of filter aid to evenly cover the filter elements upon placing the equipment into initial operation and after each cleaning. The amount of filter aid shall be selected to provide at least the same protection to the filter septum as that given by 0.1 pounds of diatomaceous earth filter aid per square foot of filter area where body feed is employed or 0.15 pounds per square foot where no body feet is used. The total required pre-coat material must be introduced into the filter within five (5) minutes of recirculation.

D. Body or Slurry Feeding. Where provided, the body feeding equipment designed for feed of filter aid to the filter influent shall have a rate capacity to feed at a reasonable constant rate easily adjustable within a calibrated range of from (2) to ten (10) ppm of the gpm design rate of the filtering unit. (The equipment shall have capacity to operate at the maximum feed rate of ten (10) ppm of the design filter rate for a period of twenty-four (24) hours without refilling.)

E. Backwash and Precoat. The filter piping may be installed to permit recirculation of the water from the effluent back to the influent until a satisfactory clear effluent backwashing and precoating is produced prior to admitting the water into the pool. An alternate is to discharge the unsatisfactory effluent to waste.

F. Cleaning Elements. Sufficient head room and facilities must be provided in the filter room for periodic removal of the filter head and element assembly for manual cleaning purposes.

G. Gauges. Pressure gauges must be installed on both the influent and effluent side of each pressure filter unit.

Vacuum Diatomaceous Earth Filters. Vacuum diatomaceous earth filters shall be installed in accor-

dance with all provisions set forth for pressure diatomaceous earth filters with the following additional requirements:

A. Provision must be made for complete and rapid draining or emptying of the filter tank prior to and during backwashing.

B. Easy physical and visual access to the filter elements must be provided to facilitate cleaning during the backwashing cycle.

C. A spray nozzle system should be installed to wash and clean the surface of the filter septum. In lieu of this system, a hose bib with an adequate length of hose must be provided near the filter for this purpose.

D. A compound gauge which will indicate both positive and negative head must be installed on the suction side of the pump.

E. In systems where the recirculation pump is two (2) horse power or higher, an adjustable high vacuum switch should be provided to prevent damage to the pump by cavitation.

Other types of filtration, including cartridge and high permeability type units, will be considered on an individual basis. (1994 C., § 11.79.320; Ord. No. 65567, § 32, 2002.)

11.79.330 Disinfection.

Chlorine is considered to be the most desirable disinfectant for swimming pools. Other disinfectants may be accepted upon submission of acceptable proof of their effectiveness. All pools shall be equipped with a chlorinator or other residual disinfectant feeder which meets the following requirements.

A. *Design and Construction.* Disinfectant feeders shall be constructed of materials that will withstand wear, corrosion or attack by disinfectant solutions or vapors and which are not adversely affected by repeated regular adjustments or other conditions anticipated in the use of the device. The feeder shall be capable of being easily disassembled for cleaning and maintenance. The design and construction shall be such as to preclude stoppage from chemicals intended to be used or foreign materials that may be contained therein. The feeder shall incorporate failure-proof features so that the disinfectant cannot feed directly into the pool, pool piping, or pool enclosure under any type of failure of the equipment or its maintenance.

B. *Capacity.* The disinfectant feeder shall be capable of maintaining at least the equivalent of one (1) part per million of free available chlorine in all portions of the pool under conditions of operation to be anticipated at the proposed installation. This usually requires application of at least ten (10) ppm of available disinfectant based on the recirculation rate.

C. *Sensitivity.* The disinfectant feeder shall have a graduated and clearly marked dosage adjustment to provide flows from full capacity to twenty-five (25) percent of such capacity. The device shall be capable of continuous delivery within ten (10) percent of the dosage at any setting.

Gas Chlorination. When chlorine gas is used, the following additional features shall be provided.

A. A water operated chlorinator shall be used which controls and regulates the flow of gas. This unit shall provide an automatic shut off of gas when water pressure fails and shall vent leakage to outside atmosphere.

B. The chlorinator shall be capable of delivering chlorine at its maximum rate without releasing chlorine to the atmosphere.

C. The mechanical proportioning device and cylinders of chlorine shall be housed in a reasonably gas-tight corrosion-resistant and mechanically vented enclosure. Air tight ducts from the bottom of the enclosure to atmosphere in an unrestricted area and a motor driven exhaust fan capable of producing at least one (1) air change per minute and automatic louvers of good design near the top of the enclosure for admitting fresh air required. Electrical switches for the enclosure adjacent to the door.

D. Chlorine cylinders shall be anchored to prevent their falling over. Keys shall be maintained on the chlorine cylinder so that supply can be shut off quickly in the case of an emergency. Cylinders shall be stored in an upright position and protected against direct exposure to the sun.

E. Scales shall be provided for weighing chlorine cylinders. Scales shall be of corrosive-resistant material, and accurate enough to indicate the loss of weight to the nearest one-quarter (¼) pound. Scales and chlorine cylinders should be placed on platforms raised above floor level.

F. A gas mask approved by the U.S. Bureau of Mines for use in a chlorine atmosphere shall be available. A replacement canister shall be provided and a record shall be kept of gas mask usage that the mask will be serviceable when needed.

G. The gas mask shall be kept in a closed cabinet accessible without a key, located outside of the room in which the chlorinator is maintained.

H. A Chlorine Institute approved safety kit should be stored outside or be near the room where the chlorine cylinders are stored and used.

I. Below ground installation of chlorination equipment will not be considered except in unusual circumstances.

Dry Feed Chlorinators. Chlorinators utilizing dry chemicals in powder, stick, tablet or any other form which feed the chemical into the water through erosion or any other manner are restricted in use to pools containing gallonage as recommended by the manufacturer and approved by the National Sanitation Foundation (NSF).

Chlorine Residual. Where chlorine, hypochlorite, or other chlorine compounds are used for disinfection, tests must be made as often as necessary to maintain adequate residuals. A free chlorine residual between one (1) ppm and three (3) ppm shall be maintained throughout the pool. If cyanuric acid or chlorinated isocyanurates are used, the following additional requirements shall be met:

A. A cyanuric acid test kit shall be provided.

B. The cyanuric acid level in the pool shall be kept below one hundred (100) ppm.

C. A free chlorinated residual of at least 1.5 ppm shall be maintained throughout the pool. (1994 C., § 11.79.330; Ord. No. 65567, § 33, 2002.)

11.79.340 pH Control.

The recirculation system of pools having a surface area greater than two thousand (2,000) square feet must be provided with a positive feed chemical machine for the introduction of soda ash, caustic soda, or other materials to control the pH of the water. (1994 C., § 11.79.340; Ord. No. 65567, § 34, 2002.)

11.79.350 Testing equipment.

Testing equipment shall be provided having a disinfectant residual range of 0 to 3 parts per million and have a pH range of 6.8 to 8.4. (1994 C., § 11.79.350; Ord. No. 65567, § 35, 2002.)

11.79.360 Safety requirements—Lifesaving equipment.

A. *Lifeguard Stations.* Each pool having an area of more than two thousand (2,000) square feet should be provided with an elevated lifeguard chair. Additional chairs should be provided on the basis of one per each two thousand (2,000) square feet or fraction thereof. The chairs must be located so as to provide a clear, unobstructed view of the pool bottom in the area under surveillance.

B. *Lifesaving Equipment.* One unit of lifesaving equipment consists of the following: A ring buoy with a minimum outside diameter of twenty (20) inches to which shall be attached a length of one-quarter (¼) inch rope, not less than one and one-half (1½) times the maximum width of the pool; a life pole or shepherd's crook type of pole with a minimum length handle of twelve (12) feet; a separate throwing line of one-quarter (¼) inch rope with length of not less than one and one-half (1½) times the maximum width of the pool. Not less than one unit of equipment, as above, should be provided at every public pool. One unit is presumed to be adequate for two thousand (2,000) square feet of pool area and one additional unit should be provided for each additional two thousand (2,000) square feet, or major fraction thereof, of pool area.

C. *Location and Storage.* Lifesaving equipment should be mounted in conspicuous places, distributed around the pool edge, at lifeguard chairs, or elsewhere, ready of access, its function plainly marked, kept in repair and ready condition, and swimmers or others shall not be permitted to tamper with it, use it for any purpose other than its intended use, or remove it from its established location.

D. *First-Aid Kit.* A standard twenty-four (24) unit first-aid kit shall be provided. Availability of a kit in the office of a motel, apartment complex, or hotel shall satisfy this requirement for such pools. (1994 C., § 11.79.360; Ord. No. 65567, § 36, 2002.)

11.79.370 Swimmer preparation facilities.

Dressing rooms, clothing storage, shower facilities and toilet facilities are required at all public swimming pools. An exception can be made for a swimming pool at a motel, hotel, apartment complex or similar establishment when such facilities are available within three hundred (300) feet of the pool.

A. *Dressing Rooms.* Bathhouses to be used simultaneously by both men and women shall have two parts; one for each sex, entirely separated by tight partitions. Dressing rooms shall be suitable designed, located, drained, equipped, lighted and ventilated.

B. *Location of Dressing Rooms.* The dressing rooms shall be located adjacent to the clothing storage room and showers and shall open to the shallow part of the pool.

C. *Walls and Partitions.* The walls and partitions of all dressing rooms and locker rooms shall have a smooth and impervious finish.

D. *Floors.* All floors shall be smooth, but non-slip finish, impervious to moisture with no open cracks or joints and have a minimum pitch of three (3) inches in ten (10) feet to the drains with no low spots which will allow water to stand.

E. *Joints and Corners.* All junctions of the floors with the sidewalls and partitions should be finished with covered joints.

F. *Partitions, Furniture, Etc.* The material used for partitions, furniture, etc., shall be such that it can be easily cleaned and will not be damaged by frequent hosing, wetting or disinfectants.

G. *Partitions.* Dressing room partitions shall have a minimum clearance of six (6) inches above the floor and curtains, if used on booths, should be of sufficiently heavy material to discourage their use as a substitute for towels.

H. *Ventilation.* All rooms in the bathhouse shall be ventilated so that they do not remain excessively damp.

I. *Lighting.* The rooms shall be lighted so that all parts are easily visible for cleaning.

J. *Cleaning.* Hose bibs shall be provided to enable the entire dressing room to be conveniently flushed by hose.

K. *Clothing Storage.* Adequate provision must be made for storing clothes and valuables belonging to the bather.

L. *Locker Rooms.* Locker rooms or individual lockers located in the dressing room may be used for safekeeping clothes and valuables of the swimmer, provided that lockers are of sound construction and so designed and located as to permit effective cleaning of floors. Keys must be supplied with each locker.

M. *Check Rooms.* Identified wire baskets or washable bags may be used for storing clothing of swimmers. Such containers must be stored on racks or hangers, off of the floor and in a dry place. A responsible attendant must be on duty in the check room at all times when the bathing place is being used. (1994 C., § 11.79.370; Ord. No. 65567, § 37, 2002.)

11.79.380 Shower facilities.

Adequate shower facilities with hot and cold water must be provided. Showers should be located to encourage use by swimmers before entering the swimming area.

A. *Separation.* Separate shower facilities shall be provided for each sex.

B. *Number of Showers Required.* Showers shall be provided on the bases of one shower for each fifty (50) swimmers or major fraction thereof at the time of maximum load when continuous swimming is permitted. When showers are used by groups, or classes on a regular time schedule of one (1) hour or less, a shower head shall be provided for each four (4) swimmers in the maximum class or one shower for each ten (10) swimmers if the scheduled period is two (2) hours.

C. *Location.* Showers shall be located between the toilets and the pool entrance.

D. *Quantity and Temperature of Water.* A minimum of three (3) gallons of water per shower per minute having a temperature of not less than 90°F and no more than 115°F shall be provided.

E. *Wall, Ceilings, and Floors.* The walls, ceilings and floors of the shower room or area shall be constructed.

F. *Floors, Floor Surfacing.* The floors shall be smooth, non-slip to bare feet, have no open cracks or joints and have a minimum pitch of three (3) inches in ten (10) toward the floor drains with no low spots which will allow water to stand.

G. *Soap Provided.* Liquid or powdered soap in suitable dispensing equipment shall be provided for each shower unit. Glass containers are not acceptable. Dispensers shall be located in such a manner as to be available to all swimmer.

H. *Shower Booths.* Shower booths, when provided, shall have partitions which will not be damaged by the shower water and have a minimum clearance of six (6) inches above the floor.

I. *Lighting.* Shower rooms shall be adequately lighted so that all parts are easily visible for cleaning. (1994 C., § 11.79.380; Ord. No. 65567, § 38, 2002.)

11.79.390 Toilets.

Adequate, satisfactory, and properly located toilet facilities for each sex must be provided.

A. *Number Required.* The minimum number of toilets for each sex at the time of maximum loading shall be considered as the following: one toilet and one

urinal for each seventy-five (75) men or fraction thereof, with one toilet and one urinal as a minimum: one toilet for each fifty (50) women or major fraction thereof, with two toilets as a minimum.

B. *Lavatory Facilities.* Lavatory facilities located adjacent to toilets must be provided in the proportion of one lavatory for each one hundred (100) persons or major fraction thereof at the time of maximum load.

C. *Floors.* Toilet room floor shall be constructed of impervious materials with no open cracks or joints; must have a smooth, non-slip finish and a pitch of not less than three (3) inches in ten (10) feet toward the floor drain.

D. *Lighting.* Toilet rooms shall be lighted so that they are easily visible for cleaning.

E. *Venting.* Toilet rooms shall be vented so that no nuisance will exist.

F. *Cleaning.* Hose bibs shall be provided for convenient hosing of the toilet rooms or area. (1994 C., § 11.79.390; Ord. No. 65567, § 39, 2002.)

11.79.400 Wading pool.

A wading pool is defined as an artificial pool with a maximum depth of not more than twenty-four (24) inches.

A. *Drainage.* The wading pool shall be so located so that drainage from the immediate area will not wash contamination into the pool during rain.

B. *Turnover Rate.* The system and all component parts shall be capable of producing a two (2) hour turnover of the entire contents of the wading pool.

C. *Overflow Gutters.* An open type overflow should be provided around the perimeter of the wading pool with a maximum variation of one-fourth (¼) inch. Wading pools with multiple inlets around the perimeter may have a single overflow outlet centrally located.

D. *Overflow Drainage.* Where a wading pool is adjacent to a swimming pool, overflow drainage may be returned to the swimming pool recirculation system, provided the hydraulic design provides for a two (2) hour turnover of the wading pool contents.

E. *Drains.* The wading pool shall be equipped at its low point with a drain capable of emptying the contents of the entire pool. Piping shall be arranged to drain the wading pool separately for frequent cleaning. Drainage shall not be returned to an adjacent pool or its water treatment facilities.

F. *Inlets.* The inlets shall be of such size and be located so as to produce uniform circulation throughout the pool.

G. *Flow Measurement.* The inlet line must be metered to ensure that the two (2) hour turnover rate is provided. (1994 C., § 11.79.400; Ord. No. 65567, § 40, 2002.)

11.79.410 Spray pools.

Spray pools are defined as those having a maximum water depth of not over three (3) inches, and which are continuously fed through spray nozzles so located as to wet the swimmer.

A. *Inlets.* Water shall enter the spray pool through spray nozzles or orifices located at least six (6) inches above the rim of the pool. Spray or water streams shall be directed in a manner that will thoroughly wet and cleanse the total bottom area of the pool proper, but shall not be directed outside the bottom area which is drained by a central drain.

B. *Outlet Drain and Overflow.* The outlet drain shall be located to receive all water discharged from the spray nozzle and/or orifice inlets. In addition, an emergency overflow weir or gutter shall be designed and so located as to prevent the depth of water over any part of the pool area from exceeding three (3) inches.

C. *Surface Drainage.* The area for at least five (5) feet outside the spray pool must be impervious, graded to drain away from the pool and have a smooth non-slip surface. (1994 C., § 11.79.410; Ord. No. 65567, § 41, 2002.)

11.79.420 Swimming pool operation.

The following water quality requirements and operational practices must be met at all public swimming pools.

Bacteriological Quality. The water in the pool must conform to the following:

A. Coliform colonies for standard samples shall not exceed 2.0 per 100 milliliter.

B. Staphylococci organisms per standard sample shall not exceed 50 per 100 milliliter.

C. Where the standard plate count is used, not more than fifteen (15) percent of the samples covering any considerable period of time shall contain more than 200 bacteria per milliliter, as determined by the standard (35ºC) agar plate count.

Chlorine Residual. Where chlorine, hypochlorite, or other chlorine compounds are used as disinfection, tests must be made as often as necessary to maintain

adequate residuals. A free chlorine residual of 1 ppm to 3 ppm shall be maintained throughout the pool. If cyanuric acid or chlorinated isocyanurates are used, the following additional requirements shall be met:

A. A cyanuric test kit shall be provided.

B. The cyanuric acid level in the pool shall be kept below 100 ppm.

C. A free chlorine residual of at least 1.5 shall be maintained throughout the pool.

pH. Hydrogen-ion (pH) tests shall be made as often as necessary to maintain the pH at a satisfactory level. A pH of 7.2 to 7.8 shall be maintained.

Clearness. The water shall have sufficient clarity at all times so that a black disk six (6) inches in diameter, on a white field is readily visible at the deepest point of the pool. (1994 C., § 11.79.420; Ord. No. 65567, § 42, 2002.)

11.79.430 Treatment facility operation.

A. *Recirculation Pump Operation.* The recirculation pumps must be operated twenty-four (24) hours per day. The pool turnover rate is calculated for twenty-four (24) hour operation and with part-time operation of the recirculation pumps.

B. *Filter.* The filters must be operated at the appropriate design rate and must be backwashed when the head loss reaches a predetermined level. (1994 C., § 11.79.430; Ord. No. 65567, § 43, 2002.)

11.79.440 Records.

A. *Operating Records.* Every pool operator must be supplied with a proper notebook or with blank forms on which shall be recorded every day the peak bathing loads handled, the volume of new water added, the results of hydrogen-ion tests, as well as setting of chemical feed machine.

B. *Miscellaneous Records.* At all pools, a full daily record must be kept of the actual time pumps and filters are in operation, of the time each filter is washed and cleaned, of the kind and amount of each chemical used or added, of the time the bottom and sides of the pool are cleaned, and of the total amount of water used for makeup. (1994 C., § 11.79.440; Ord. No. 65567, § 44, 2002.)

11.79.450 Supervision of swimmers.

A. *Lifeguards.* One or more qualified lifeguards shall be on duty whenever the pool or pool enclosure (fenced area) is occupied except for the exclusions provided under Section 11.79.020.B. For the purpose of this paragraph, "occupied" means in use for swimming with the consent, expressed or implied, of the owner. Every lifeguard shall have passed within the last three years a Senior Life Saving test given by the American Red Cross, YMCA, Boy Scouts of America, or other organization approved by the Health Commissioner.

B. *Separation of Swimmers.* Entrance of any person except authorized personnel and accepted swimmers to the bathhouse and swimming area is not permitted. (1994 C., § 11.79.450; Ord. No. 67698, § 2, 2007; Ord. No. 65567, § 45, 2002.)

11.79.460 Personnel regulations.

All persons must be required to take a cleansing shower using warm water and soap and thoroughly rinsing off all soap suds before entering the swimming area enclosure.

A. *Using the Toilet.* A swimmer leaving the swimming area to use the toilet must take a second cleansing shower before returning.

B. *Communicable Disease Control.* Any person having any communicable disease must be excluded from the pool. This is to include skin disease, sore or inflamed eyes, a cold, ear or nasal discharges and other communicable diseases not readily apparent by visual inspection.

C. *Posting of Regulations.* Suitable placards embodying the above personal regulations and instructions and those relating to towels and suits shall be conspicuously posted in the dressing rooms, offices and swimming area. (1994 C., § 11.79.460; Ord. No. 65567, § 46, 2002.)

11.79.470 Suits and towels.

Laundry Equipment. Unless rental suits and towels are sent to a public laundry, modern laundry equipment should be provided. Cold water washing and air drying is prohibited. The use of disinfectants on suits and towels in place of proper laundry methods is not permitted. Suits and towels may not be rented until properly laundered.

Clean suits and towels must be kept separate from unlaundered suits and towels. (1994 C., § 11.79.470; Ord. No. 65567, § 47, 2002.)

11.79.480 Special requirements for indoor swimming pools.

A. All indoor pools and bathhouses, dressing rooms, showers rooms and toilet rooms serving indoor pools must be properly ventilated. Ventilation must be

so designed that a direct draft will not blow on the swimmers. Fresh air should be heated before discharge into the swimming pool room and heating facilities capable of maintaining a temperature between 75ºF and 82ºF must be located in a manner that will prevent contact with swimmers.

B. It is also desirable to heat all or part of the recirculated water. In designing a heater for this purpose, ample surface for heat exchange must be provided. The heater may be designed for use with steam or hot water. The blowing of steam directly into the pool or heating coils is prohibited. An automatic thermocontrol of the temperature is desirable. A fixed thermometer should be placed on the recirculation line beyond the heater and another near the outlet of the pool. Thermometers should be accessible and have a type of scale that is easily read.

C. Walkways surrounding indoor pools shall be at least four (4) feet wide.

D. Artificial lighting shall be designed to provide at least 0.6 watts per square foot on the pool and walk area. Lights shall be protected or recessed to prevent breakage. Underwater lighting must conform with the requirements for underwater lighting of outdoor pools. (1994 C., § 11.79.480; Ord. No. 65567, § 48, 2002.)

11.79.490 Spas.

A spa is a bathing pool designed for non-swimming recreational use. It may include, but is not limited to, hydrojet circulation, hot water, mineral baths, air induction systems, or any combinations thereof.

A. *Maximum Depths.* The maximum water depth shall be four (4) feet measured from the water line. The maximum submerged depth of any seat or sitting bench shall be two (2) feet measured from the water line.

B. *Handholds.* A spa shall have one (1) or more suitable, slip-resistant handhold(s) around the perimeter, located no farther apart than four (4) feet and not over twelve (12) inches above the water line.

C. *Stairs, Ladders and Recessed Treads.* Stairs, ladders or recessed treads shall be provided where spa depths are greater than two (2) feet. A spa shall be equipped with at least one means of egress with a handrail for each fifty (50) feet of perimeter or portion thereof.

D. *Deck Widths.* A five (5) foot minimum width, continuous, unobstructed deck, which may include the coping, shall be provided on two (2) sides or fifty percent or more of the spa perimeter. When the spa is adjacent to another pool, the spa shall be located at the shallow end with a minimum distance of five (5) feet between the pools. Spas constructed and operated prior to the effective date of this chapter shall be exempted, provided they comply with the minimum sanitary and safety requirements adopted herein.

E. *Water Temperature Controls.* Controls shall be provided to prevent water temperatures in excess of 105ºF. The controls shall be accessible only to the pool operator.

F. *Spa Drainage.* Means to drain the spa shall be provided to allow frequent draining and cleaning.

G. *Entrapment Protection.* Outlets shall be designed so that each pumping system prevents patron entrapment. Acceptable means include the use of multiple unvalved outlets, an anti-vortex drain, and a twelve (12) inch by twelve (12) inch square grate or one of equivalent area.

H. *Surface Skimmers.* One surface skimmer shall be provided for each one hundred (100) square feet or major fraction thereof of surface area.

I. *Inlets.* One (1) wall inlet shall be provided for each twenty (20) feet of pool perimeter, and a minimum of two (2) wall inlets shall be provided.

J. *Air Induction Systems.* An air induction system, when provided, shall prevent water back-up that could cause electrical shock hazards.

K. *Disinfection.* An approved sanitizer is required. If chlorine compounds are used for disinfection, a free residual between 1 ppm and 3 ppm shall be maintained throughout the spa. Gas chlorinators shall not be used. A pH level of 7.2 to 7.8 shall be maintained. All disinfection equipment shall be National Sanitation Foundation-approved. Manual addition of chemicals as authorized by the Commissioner may be allowed if the spa is closed.

L. *Recirculation Flow Rates.* The recirculation flow rate shall be thirty (30) gallons per minute per skimmer or provide a thirty (30) minute turnover, whichever is greater.

M. *Agitation Systems.* The agitation system shall be separate from the water treatment recirculation system. The agitation system shall be connected to a ten (10) minute timer located out of the reach of a person in the spa.

N. *Caution Signs.* A sign visible and legible from the spa shall be provided. It shall state: "Caution. Any person having an acute or chronic medical condition such that use of this spa might adversely affect their

health should consult a physician before using this spa. Do not use the spa immediately following exercise or while under the influence of alcohol. Do not use the spa longer than ten (10) minutes. Children shall be accompanied by an adult."

O. *Operation.* Spas constructed or operated prior to the effective date of this section, which do not fully comply with the minimum requirements regarding the design and construction, may be continued in use, provided the equipment and operation of such spas comply with the minimum sanitary and safety requirements adopted herein. (1994 C., § 11.79.490; Ord. No. 65567, § 49, 2002.)

11.79.500 Penalty.

Any person convicted of violating any section of this chapter or a rule or regulation promulgated herein shall be fined not less than $100.00 or by imprisonment up to sixty days or by both fine and imprisonment. (1994 C., § 11.79.500; Ord. No. 65567, § 50, 2002.)

Chapter 11.80

SATELLITE DISH ANTENNAS, SATELLITE ANTENNAS OR OTHER SIMILAR DEVICES

Sections:

11.80.010 Regulations—Structures.
11.80.020 Location.
11.80.030 Screening.
11.80.040 Building permit.
11.80.050 Placement in side yard prohibited.

11.80.010 Regulations—Structures.

No satellite dish antenna or other similar device, 48 inches or less in diameter, shall be located in front of the building line of any structure or attached to the street side of any structure unless such placement is required to properly access a satellite transmission. A satellite dish antenna may not extend more than 36 inches above the roof peak. (1994 C., § 11.80.010; Ord. No. 66777, § 1, 2003.)

11.80.020 Location.

Any satellite antenna, or similar device, must be located in the rear yard and shall have suitable protective anti-climb fencing and a landscape planting screen shall be provided and maintained around the structure and accessory attachments. (1994 C., § 11.80.020; Ord. No. 66777, § 2, 2003.)

11.80.030 Screening.

Satellite antennas, or similar devices, which are located in a rear yard which fronts a public street shall be properly screened from view. Proper screening shall be limited to suitable protective anti-climb fencing and a landscape planting screen. (1994 C., § 11.80.030; Ord. No. 66777, § 3, 2003.)

11.80.040 Building permit.

Any structure covered in this chapter shall require a building permit prior to erection. The application for a permit must include construction drawings showing the proposed method of installation, including details on anchoring, fencing and landscaped screens. (1994 C., § 11.80.040; Ord. No. 66777, § 4, 2003.)

11.80.050 Placement in side yard prohibited.

No satellite antenna, or similar device shall be located in any side yard, nor shall it be located on the street side of any structure, except as permitted in Section 11.80.030. (1994 C., § 11.80.050; Ord. No. 66777, § 3, 2003.)

Chapter 11.81

GROUND WATER

Sections:

11.81.010 Definitions.
11.81.020 Potable water supply.
11.81.030 Wells.
11.81.040 Reporting violations to Missouri Department of Natural Resources.
11.81.050 Mayor's duties.
11.81.060 Penalty for violation.

11.81.010 Definitions.

For the purposes of this chapter, the following definitions shall apply:

A. "Person" shall include any individual, partnership, co-partnership, firm, company, limited liability company, corporation, association, joint stock company, trust, political subdivision, or any other legal entity, or their legal representatives, agents or assigns.

B. "Potable water" means any water used or intended to be used for human or domestic consumption, including, but not limited to, use for drinking, bathing, swimming, washing dishes, or preparing food. (1994 C., § 11.81.010; Ord. No. 66777, § 1, 2005.)

11.81.020 Potable water supply.

Notwithstanding the provisions of any other ordinance, no person shall use or attempt to use ground water as a potable water supply. (1994 C., § 11.81.020; Ord. No. 66777, § 2, 2005.)

11.81.030 Wells.

No person shall drill or install wells to be used for a potable water supply. (1994 C., § 11.81.030; Ord. No. 66777, § 3, 2005.)

11.81.040 Reporting violations to Missouri Department of Natural Resources.

Any active or inactive potable water wells found to exist subsequent to the enactment of this chapter shall be reported to the Missouri Department of Natural Resources (MoDNR). (1994 C., § 11.81.040; Ord. No. 66777, § 4, 2005.)

11.81.050 Mayor's duties.

The Mayor of the City of St. Louis, or his designee, is hereby authorized and directed to enter into a Memorandum of Understanding with MoDNR for tracking remediated sites, notifying MoDNR of changes to this chapter, and taking certain precautions regarding potable water supply wells, if any are found subsequent to the enactment of this chapter. (1994 C., § 11.81.050; Ord. No. 66777, § 5, 2005.)

11.81.060 Penalty for violation.

Any person convicted of violating this chapter shall be fined not more than five hundred dollars or imprisoned up to ninety days or by both fine and imprisonment and shall be required to close the well(s) according to state standards under the Missouri Well Construction Rules (10 CSR 23) or other applicable state or federal laws or regulations. (1994 C., § 11.81.060; Ord. No. 66777, § 6, 2005.)

Chapter 11.85

YARD WASTE

Sections:

11.85.010 Definitions.
11.85.020 Regulations.
11.85.030 Penalty for violation.

11.85.010 Definitions.

Yard Waste. As used in this chapter, the term "yard waste" means leaves, grass clippings, yard and garden vegetation. (1994 C., § 11.85.010; Ord. No. 69272, § 1, 11-8-2012.)

11.85.020 Regulations.

Yard waste shall not be placed in a City-owned yard waste container by private lawn service businesses unless the yard waste comes from a private residential lot on the block where the City-owned yard waste container is located. Once yard waste is placed on a private lawn service's truck bed or trailer, it is no longer considered yard waste and its disposal becomes the responsibility of the lawn service provider and may not be placed in a city-owned yard waste container.

Yard waste collected from commercial properties, churches, schools, or other nonresidential properties, shall not be placed in City-owned yard waste containers.

Yard waste shall not be placed, moved or mechanically blown onto public or private streets, walkways, alleys, sidewalks or roadways.

The owners of residential properties who legally use City refuse containers shall also be encouraged to recycle grass clippings and other yard waste by mulching or composting the material in accordance with established regulations and best practices. Any yard waste that cannot be disposed of using environmentally friendly methods shall be collected and placed in refuse containers marked "yard waste only" or in other ways defined under this Chapter 11 of the St. Louis Revised Code.
(1994 C., § 11.85.020; Ord. No. 71575, § 1, 11-4-2022; Ord. No. 69272, § 1, 11-8-2012.)

11.85.030 Penalty for violation.

Any person who violates the provisions in this chapter shall be subject to of a fine of a minimum of one hundred dollars ($100.00) and up to five hundred dollars ($500.00) or imprisonment of a term not to exceed ninety (90) days or both at the discretion of the court. (1994 C., § 11.85.030; Ord. No. 69272, § 1, 11-8-2012.)

Chapter 11.90

DEMOLITION BY NEGLECT

Sections:

11.90.010 Demolition by neglect established.
11.90.020 Exercise of police powers; authority.
11.90.030 Purpose.

11.90.040 Definitions.
11.90.050 Standards.
11.90.060 Petition and action thereon.
11.90.070 Actions.
11.90.080 Summons.

11.90.090 Administrative hearings.
11.90.100 Safeguards from undue economic hardship.
11.90.110 Consequences of finding of undue economic hardship.
11.90.120 Other City powers.
11.90.130 Penalties and remedies.

11.90.010 Demolition by neglect established.

There is hereby established procedures and requirements for the repair and stabilization of historic buildings considered high merit as defined in Ordinance 64689, which states that "high merit" means contributing as a major structure to an existing or potential City or National historic district or deserving of consideration for single site historic or Landmark site designation. This chapter shall be known as the City of St. Louis "Demolition By Neglect Ordinance." (1994 C., § 11.90.010; Ord. No. 69735, § 1, 4-25-2014.)

11.90.020 Exercise of police powers; authority.

The Board of Aldermen finds that there exist in the City of St. Louis High Merit historic properties that are decaying and deteriorating, and which by and as a result of neglect are being demolished. The Revised Code of the City of St. Louis authorizes the City to exercise its authority to prevent the demolition by neglect of these properties. (1994 C., § 11.90.020; Ord. No. 69735, § 2, 4-25-2014.)

11.90.030 Purpose.

The purpose of this chapter is to protect high merit historic buildings in the City of St. Louis by intervening when such building is undergoing demolition by neglect. (1994 C., § 11.90.030; Ord. No. 69735, § 3, 4-25-2014.)

11.90.040 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section:

A. "High merit historic building" means a building which is contributing as a major structure to an existing or potential City or National historic district or deserving of consideration for single site historic or landmark site designation.

B. "Owner" means the holder of the title in fee simple and every mortgagee of record.

C. "Parties in interest" means all individuals, associations, and corporations who have interests of record in a building and any who are in possession and/or exercise control thereof. (1994 C., § 11.90.040; Ord. No. 69735, § 4, 4-25-2014.)

11.90.050 Standards.

A. The exterior features of any high merit historic building located within the City of St. Louis shall be preserved by the owner and/or parties in interest, from decay, deterioration and structural defects. The owner and/or parties in interest shall, upon written request of the City, repair such exterior features if they are found to be deteriorating, or if their condition is contributing to deterioration, including, but not limited to, any of the following conditions of demolition by neglect:

1. Deterioration or collapse of exterior walls, foundations, or other vertical support that causes leaning, sagging, splitting, listing, collapse, holes, or buckling.

2. Deterioration of flooring or floor supports, roofs, or other horizontal members that causes leaning, sagging, splitting, listing, collapse, holes, or buckling.

3. Deterioration of external chimneys that causes leaning, sagging, splitting, listing, or buckling.

4. Deterioration or crumbling of exterior plasters or mortars.

5. Ineffective securing of exterior walls, roofs, and foundations, including broken windows or doors against rain, snow, wind, and other conditions that promote deterioration.

6. Defective protection or lack of weather protection for exterior wall and roof coverings, including lack of paint, or weathering due to lack of paint or other protective covering.

7. Loss of coping, flashing, eaves, mortar, bricks, other masonry materials and other elements that expose the building to weather and the loss of materials and eventual collapse.

8. Deterioration of exterior stairs, porches, handrails, window and door frames, cornices, entablatures, dormers, and architectural elements that cause water infiltration, delamination, instability, loss of shape and form, or crumbling.

9. Heaving, subsidence, or cracking of foundations, steps or sidewalks.

10. Deterioration that has a detrimental effect upon the special character of the district as a whole or the attributes and character of the high merit historic building.

11. Deterioration of any exterior feature so as to create or permit the creation of any hazardous or unsafe conditions to life, health, or other property.

B. A finding of demolition by neglect shall be based on one of more of the following standards that indicate demolition by neglect:

1. Conditions exist that indicate that the property is not being maintained pursuant to St. Louis City Building Codes and/or Preservation Ordinances as codified in the Revised Code of the City of St. Louis, and such conditions must be corrected to avoid additional deterioration;

2. Conditions exist that cause additional and continual deterioration through the loss of or damage to building elements that keep water from damaging additional materials and elements of the building, leading to structural deterioration, loss of exterior building materials, and the loss of architectural elements;

3. Conditions exist that include the loss of building components that protect other elements of the building from water and weathering, therefore furthering continuing deterioration;

4. Conditions exist that are causing, or could soon cause, structural instability in the building and therefore contribute to its overall deterioration;

5. Conditions exist that are not limited to a finite element or area of the building, and therefore are, or will become, contributing to the overall deterioration of the building;

6. The owner of the property is not ameliorating conditions that are causing deterioration and instability in the building by taking steps to repair, enclose, stabilize, or otherwise eliminate such conditions. (1994 C., § 11.90.050; Ord. No. 69735, § 5, 4-25-2014.)

11.90.060 Petition and action thereon.

A. The Director of Cultural Resources of the City of St. Louis may file a Petition regarding an historic high merit property in the City of St. Louis, listing specific defects and conditions consistent with demolition by neglect, and requesting action under the following procedures.

B. The petition shall be presented by the Director of Cultural Resources to the Preservation Board of the City of St. Louis. Such petition shall be reviewed by the Preservation Board, which Board shall make a determination if the petition should be filed with the Building Commissioner of the City of St. Louis.

C. Upon the filing of the petition with the Building Commissioner, the Building Commissioner shall review the petition and conduct any investigation he finds necessary to determine if he has a good faith belief that there exists a basis for such charges that the subject building is undergoing demolition by neglect. At the discretion of the Building Commissioner, the Commissioner or his designee shall give written notice to the owner and/or parties in interest of the subject building.

The notice shall state that the Commissioner reasonably believes that the building is undergoing demolition by neglect and shall identify the conditions which form the basis of the belief.

Such notice shall provide that such party shall have thirty (30) days to abate the conditions set forth in the notice.

The notice shall also provide the owner or parties in interest a reasonable opportunity to meet with a representative or representatives of the City to discuss the allegations in the notice and the need for abatement measures.

D. Methods of Service. A copy of the notice and attached petition shall be sent to the owner and/or parties in interest in one of the following ways:

1. Delivery direct to owner and/or party in interest;

2. Mailing a copy of said notice by regular mail, postage prepaid, direct to owner and/or parties in interest to such party's place of business, known residence, or the address currently recorded in the Assessor's Office of the City of St. Louis;

3. Publication in newspaper of general circulation in the City of St. Louis;

4. Posting a copy of said notice upon the building. (1994 C., § 11.90.060; Ord. No. 69735, § 6, 4-25-2014.)

11.90.070 Actions.

If the owner and/or parties in interest fail to abate the conditions set forth on the notice, and no resolution has been reached with the City of St. Louis, the Building Commissioner shall direct one or both of the following:

A. A summons be sent to such party as set forth in Section 11.90.080 of this chapter for prosecution in the Municipal Court in the City of St. Louis;

B. A notice of administrative hearing may be sent to such party as set forth in Section 11.90.090 of this chapter for hearing before an Administrative Law Judge. Service shall be as set forth in Section 11.90.060.C.

Nothing in this chapter shall preclude the City of St. Louis from taking any other action available to it under the laws of the City of St. Louis and the State of Missouri. (1994 C., § 11.90.070; Ord. No. 69735, § 7, 4-25-2014.)

11.90.080 Summons.

Any owner and/or party in interest who does not abate the conditions set forth in the notice within the thirty (30) day period may be issued a summons alleging demolition by neglect. A defendant who is found guilty of, or pleads guilty to, such offense shall be subject to a fine of not less than $300.00 and not more than $500.00, and any other penalty available by law, including up to ninety (90) days in jail, for the first offense. A defendant who is found guilty of, or pleads guilty to, a second offense of demolition by neglect shall be subject to a fine of not less than $500.00, and any other penalty available by law, including up to ninety (90) days in jail. Each day the conditions on the summons exist may be deemed a separate and distinct offense for which a summons may be issued. (1994 C., § 11.90.080; Ord. No. 69735, § 8, 4-25-2014.)

11.90.090 Administrative hearings.

A. Any owner and/or party in interest who does not abate the conditions set forth in the notice within the thirty (30) day period may be subject to the provisions of the section. The Building Commissioner may initiate an administrative hearing in order to seek a finding of demolition by neglect, and, if so found, request an order of abatement.

B. The notice of administrative hearing shall be in writing and sent by first class U.S. mail or served in person, not less than twenty (20) days prior to the date of such hearing. If neither service by mail or personal delivery is possible, service shall be made by publication.

A copy of the notice of administrative hearing shall also be posted in a prominent place on the building.

C. An attorney who appears on behalf of any owner or party in interest must file a written appearance with the Building Division.

D. The case for the City shall be presented by the City Counselor.

E. The Administrative Hearing Officer may grant continuances only upon a finding of good cause.

F. All testimony shall be given under oath or affirmation.

G. The Administrative Hearing Officer may issue subpoenas to secure the attendance and testimony of relevant witnesses and the production of relevant documents.

H. RSMo 536.070 shall control the rules of evidence, objections, witnesses, judicial notice, affidavits as evidence, and the transcript requirements of the administrative hearing.

I. The finding of demolition of neglect shall be based on one or more of the following findings:

1. Conditions exist that indicate that the property is not being maintained to code standards and that conditions exist that must be corrected to avoid additional deterioration.

2. Conditions exist that cause additional and continual deterioration through the loss of or damage to building elements that keep water from damaging additional materials and elements of the building, leading to structural deterioration, loss of exterior building materials, and the loss of architectural elements.

3. Conditions exist that include the loss of building components that protect other elements of the building from water and weathering, and therefore furthering continuing deterioration.

4. Conditions exist that are causing, or could soon cause, structural instability in the building and therefore contribute to its overall deterioration.

5. Conditions exist that are not limited to a finite element or area of the building, and therefore are, or will become, contributing to the overall deterioration of the building.

6. The owner of the property is not ameliorating conditions that are causing deterioration and instability in the building by taking steps to repair, enclose, stabilize, or otherwise eliminate such conditions.

J. Upon conclusion of a hearing, the Administrative Hearing Officer shall issue Findings of Fact, Conclusions of Law and Order of the Hearing Officer ("order") setting forth the facts and law which support his/her determination of "demolition by neglect."

K. In the event that demolition by neglect is found, the Administrative Hearing Officer shall enter an order of abatement, requiring the party to implement reasonable measures designed to abate existing violations, stabilize and/or prevent deterioration of the building.

L. The order shall inform the respondent of his/her right to seek judicial review of the Hearing Officer's final determination as provided in RSMo 536.100 to 536.140.

M. The record of all hearings before an Administrative Hearing Officer shall include: (i) a record of the testimony presented at the hearing, which may be made by tape recording, digital recording, or other means; (ii) all exhibits submitted as evidence at the hearing; and (iii) a copy of the order. (1994 C., § 11.90.090; Ord. No. 69735, § 9, 4-25-2014.)

11.90.100 Safeguards from undue economic hardship.

A. When a claim of undue economic hardship is made, the Building Commissioner shall notify the City Counselor within ten (10) days of receipt of said claim. An administrative hearing shall be scheduled on the claim within thirty (30) days of receiving notice of the claim of undue economic hardship. Enforcement proceedings under this chapter shall be stayed until this hearing can be held, and an administrative order is issued on this claim.

B. When a claim of undue economic hardship is made, the owner or party in interest must provide evidence during the hearing upon the claim, describing the circumstances of hardship, which evidence shall include for all buildings:

1. Nature of ownership (individual, business, or nonprofit) or legal possession, custody, and control.

2. Financial resources of the owner and/or parties in interest.

3. Cost of repairs.

4. Assessed value of the land and improvements.

5. Real estate taxes for the previous two (2) years.

6. Amount paid for the property, date of purchase, and party from whom purchased, including a description of the relationship between the owner and the person from whom the property was purchased, or other means of acquisition of title, such as by gift or inheritance.

7. Annual debt service, if any, for previous two (2) years.

8. Any listing of the property for sale or rent, price asked, and offers received, if any.

For income-producing property:

9. Annual gross income from the property for the previous two (2) years.

10. Itemized operating and maintenance expenses for the previous two (2) years, including proof that adequate and competent management procedures were followed.

11. Annual cash flow, if any, for the previous two (2) years. (1994 C., § 11.90.100; Ord. No. 69735, § 10, 4-25-2014.)

11.90.110 Consequences of finding of undue economic hardship.

Within thirty (30) days of the administrative hearing on a claim of undue economic hardship, the Administrative Hearing Judge shall make a finding of undue or no undue hardship and shall enter the reasons for such finding into the record. In the event of a finding of no undue hardship, the Administrative Hearing Officer shall issue an order for such building to be repaired within a time to be specified.

In the event of a finding of undue economic hardship, the finding shall be accompanied by an order containing a plan for the building taking into account the finding; said plan may include, but is not limited to, an adjustment or reduction of requirements imposed in the original notice from the Building Commissioner sufficient to mitigate the undue economic hardship. The Building Commissioner shall be issued a copy of the order, and charged with enforcement of the provisions of the order. (1994 C., § 11.90.110; Ord. No. 69735, § 11, 4-25-2014.)

11.90.120 Other City powers.

Nothing contained within this chapter shall diminish the City's power to enforce any aspect of the Revised Code of the City of St. Louis. (1994 C., § 11.90.120; Ord. No. 69735, § 12, 4-25-2014.)

11.90.130 Penalties and remedies.

Enforcement of this chapter may be by any one (1) or more of the following methods, and the institution of any action under any of these methods shall not relieve any party from any other civil or criminal proceeding prescribed for violations and prohibitions.

A. Equitable Remedy. The City may seek equitable remedy in Circuit Court to enforce the provisions of this chapter.

B. Order of Abatement. Administrative Hearing Officer may enter an order of abatement. An order of abatement may direct that improvements or repairs be made, or that any other action be taken that is necessary to bring the property into compliance with the provisions of this chapter.

C. Contempt. Whenever the party against whom the order of abatement is issued fails to comply, the

party may be cited for contempt, and shall be subject to sanctions to be determined by a court of competent jurisdiction.

D. Remediation. The Building Commissioner shall have the right to exercise its authority to enter into the property to cause remediation of the property as required by the provisions of this chapter, and shall exercise his authority to enter into contracts for the work to be performed. When the Building Commissioner shall cause such work to be performed, the City shall prepare bills for the amount paid for such work by the party against whom the order of abatement was entered, and the Building Commissioner shall have the ability to enter into contracts with no other review, signature or approval from any other City agency.

E. The cost of such work shall be paid for by the City of St. Louis. The Building Commissioner shall certify to the Comptroller the cost of such work, including the administrative costs incurred by the Division of Building and Inspection in performing said work, but in no event shall such administrative costs exceed ten (10) percent of the contract price incurred by the Division of Building and Inspection in performing such work. The Building Commissioner shall prepare bills for such work against the party against whom the order of abatement has been issued. In case said bills are not paid upon presentation, they shall be referred to the City Counselor, who shall proceed to collect the same by any legal remedies available by law. Any such bill which has not been collected within 180 days after it is first mailed to such party shall be certified to the Comptroller, who shall notify the Collector of Revenue. The Collector of Revenue shall include the certified cost in the annual real estate bill for the property and the certified cost shall be collected in the same manner and procedure for collecting real estate taxes.

All such money collected as provided for in Subsection E of this section shall be transmitted daily to the Treasurer of the City of St. Louis in the form and manner prescribed by the Comptroller of the City of St. Louis. The Comptroller shall hold all such money collected pursuant to this section for deposit into the special demolition fund established by a vote of the people and set forth in Ordinance 8790, Section 1082.7. (1994 C., § 11.90.130; Ord. No. 69735, § 13, 4-25-2014.)

Chapter 11.95

ENFORCEMENT OF CODE VIOLATIONS

Sections:

11.95.010	**Code violations unlawful.**
11.95.020	**Chapter not in contravention with duties and powers of Health Commissioner and does not negate or preclude other remedies.**
11.95.030	**Notice of violation.**
11.95.040	**Administrative citations.**
11.95.050	**Administrative citation fine.**
11.95.060	**Payment of administrative citation fine.**
11.95.070	**Request for administrative hearing.**
11.95.080	**Designation of hearing officer.**
11.95.090	**Administrative hearing.**
11.95.100	**Decision of hearing officer.**
11.95.110	**Late payment charges.**
11.95.120	**Unpaid fine, sanction, or costs are a debt due to City; judicial review; trial de novo; imposition of lien.**
11.95.130	**Schedule of administrative fines.**

11.95.010 Code violations unlawful.

It shall be unlawful for any person, firm or corporation to be in conflict with or in violation of any of the provisions of any regulatory code relating to health and safety in the City of St. Louis as such codes exist at the time of the effective date of the ordinance codified in this chapter and as such codes may be amended in the future. (1994 C., § 11.95.010; Ord. No. 69821, § 1, 7-28-2014.)

11.95.020 Chapter not in contravention with duties and powers of Health Commissioner and does not negate or preclude other remedies.

This chapter should not be construed in any way as in contravention of the duties and powers of the Health Commissioner relative to the condemnation and abatement of any matter which may constitute a nuisance or eminent health hazard, and shall not negate or preclude the availability of any other remedies for violation of any other City of St. Louis ordinance that might be applicable. (1994 C., § 11.95.020; Ord. No. 69821, § 2, 7-28-2014.)

11.95.030 Notice of violation.

Whenever the code official determines that there has been a violation of any regulatory code relating to health and safety or has grounds to believe that a violation has occurred, notice shall be given to the owner or the person or persons responsible therefore in the following manner. Such notice shall:

1. Be in writing;

2. Include a description of the real estate sufficient for identification when applicable;

3. Include a statement of the violation or violations and why the notice is being issued;

4. If applicable, include a correction order allowing a reasonable time to make the repairs, abate nuisances, or to complete any other action necessary to become compliant with the provisions of applicable code; and

5. Inform the property owner or person responsible of the right to appeal.

The notice shall be directed to the owner or owners of such building, structure or premises as recorded most recently in the City of Saint Louis Assessor's Office and/or the person or persons responsible for violating the regulatory code. The notice shall be served in one of the following ways:

1. Personal delivery to owner or owners and/or the person or persons responsible; or

2. Mailing a copy of said notice by regular U.S. mail, postage prepaid, direct to the owner or owners or the person or persons responsible; or

3. If the notice is returned by the U.S. Postal Service showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the building, structure or premises that is the subject property of or location of violation. (1994 C., § 11.95.030; Ord. No. 69821, § 3, 7-28-2014.)

11.95.040 Administrative citations.

A. If the notice of violation is not complied with, the code official shall have the authority to issue an administrative citation to any person responsible for the violation.

B. Each administrative citation shall contain the following information:

1. The date of the violation or, if the date of the violation is unknown, then the date the violation is identified;

2. The address or a definite description of the location where the violation occurred;

3. The section of the applicable code violated and a description of the violation;

4. The amount of the fine for the code violation;

5. A description of the fine payment process, including a description of the time within which and the place to which the fine shall be paid;

6. An order prohibiting the continuation or repeated occurrence of the code violation described in the administrative citation;

7. A description of the administrative citation review process, including the time within which the administrative citation may be contested and the place from which a request for hearing form to contest the administrative citation may be obtained; and

8. The name and signature of the citing code official. (1994 C., § 11.95.040; Ord. No. 69821, § 4, 7-28-2014.)

11.95.050 Administrative citation fine.

A. The administrative citation fine amount for a first violation under the provisions of this chapter shall be one hundred dollars ($100.00), unless otherwise set forth in Section 11.95.130.B.

B. The administrative citation fine for repeat violations of the same code provision by the same person or at the same property within twelve months from the date of the first administrative citation shall be two hundred dollars ($200.00), unless otherwise set forth in Section 11.95.130.B.

C. Any administrative citation fine which is not paid on or before its due date shall accrue a penalty in an amount equal to the original administrative citation fine. Said penalty shall be collected in the same manner as the underlying fine. (1994 C., § 11.95.050; Ord. No. 69821, § 5, 7-28-2014.)

11.95.060 Payment of administrative citation fine.

A. The fine shall be paid to the City within thirty days from the date of the administrative citation.

B. Any administrative citation fine paid pursuant to Subsection A shall be refunded if it is determined, after a hearing, that the person charged in the administrative citation was not responsible for the violation or that there was no violation as charged in the administrative citation.

C. Payment of a fine under this chapter shall not excuse or discharge any continuation or repeated occurrence of the code violation that is the subject of the administrative citation. (1994 C., § 11.95.060; Ord. No. 69821, § 6, 7-28-2014.)

11.95.070 Request for administrative hearing.

A. Any recipient of an administrative citation may contest that there was a violation of the code or that he or she is the responsible party by completing a Request for Administrative Hearing petition and returning it to the Department of Health, Bureau of Environmental Health Services, along with a non-refundable filing fee of $20.00, within thirty days from the date of the administrative citation.

B. A Request for Administrative Hearing petition may be obtained from the Department of Health, Bureau of Environmental Health Services.

C. The person requesting the hearing shall be notified of the time and place set for the hearing at least ten days prior to the date of the hearing.

D. If the code official submits an additional written report concerning the administrative citation to the hearing officer for consideration at the hearing, then a copy of this report also shall be served on the person requesting the hearing at least five days prior to the date of the hearing. (1994 C., § 11.95.070; Ord. No. 69821, § 7, 7-28-2014.)

11.95.080 Designation of hearing officer.

The Health Commissioner's designee or Chief of Environmental Health Services shall designate the hearing officer for the administrative hearing. (1994 C., § 11.95.080; Ord. No. 69821, § 8, 7-28-2014.)

11.95.090 Administrative hearing.

A. A hearing before the hearing officer shall be set for a date that is not less than fifteen (15) days and not more than ninety (90) days from the date that the request for hearing is filed in accordance with the provisions of this chapter.

B. At the hearing, the party contesting the administrative citation shall be given the opportunity to testify, and to present evidence concerning the administrative citation, and the party contesting the administrative citation may be represented by counsel at any hearing, though this is not a requirement.

C. The failure of any recipient of an administrative citation to appear at the administrative citation hearing shall constitute a failure to exhaust their administrative remedies.

D. The code violation notice, property record, and related documentation in the proper form, or a copy thereof, shall be prima facie evidence of the municipal code violation. The code official who issued the notice of violation need not be present.

E. The hearing officer may continue the hearing and request additional information from the code official or the recipient of the administrative citation prior to issuing a written decision. (1994 C., § 11.95.090; Ord. No. 69821, § 9, 7-28-2014.)

11.95.100 Decision of hearing officer.

A. After considering all of the testimony and evidence submitted at the hearing, the hearing officer shall issue a written decision to uphold or cancel the administrative citation and shall list in the decision the reasons for that decision. The decision of the hearing officer shall be considered a final decision.

B. If the hearing officer determines that the administrative citation should be upheld the hearing officer shall set forth in the decision a payment schedule for the fine.

C. If the hearing officer determines that the administrative citation should be canceled and the fine was deposited with the City, then the City shall promptly refund the amount of the deposited fine, together with interest at the average rate earned on the City's portfolio for the period of time that the fine amount was held by the City.

D. The recipient of the administrative citation shall be served with a copy of the hearing officer's written decision. (1994 C., § 11.95.100; Ord. No. 69821, § 10, 7-28-2014.)

11.95.110 Late payment charges.

Any person who fails to pay to the City any fine imposed pursuant to the provisions of this chapter on or before the date that fine is due also shall be liable for the payment of any applicable late payment charges set forth in the schedule of fines. (1994 C., § 11.95.110; Ord. No. 69821, § 11, 7-28-2014.)

11.95.120 Unpaid fine, sanction, or costs are a debt due to City; judicial review; trial de novo; imposition of lien.

A. The hearing officer may not impose incarceration or any fine in excess of the amount allowed by the schedule of fines. Any sanction, fine or costs, or part of any fine, other sanction, or costs, remaining unpaid after the exhaustion of, or the failure to exhaust, judicial review procedures under RSMo 536, shall be a debt due and owing the City, and may be collected in accordance with applicable law.

B. Any final decision or disposition of a code violation by a hearing officer shall constitute a final

determination for purposes of judicial review, subject to review under Chapter 536 RSMo. After expiration of the judicial review period under RSMo 536, and after expiration of the ten-day period allowed to the defendant under RSMo 479.011 to request a trial de novo in the Circuit Court, unless stayed by a court of competent jurisdiction, the administrative tribunal's decisions, findings, rules, and orders may be enforced in the same manner as a judgment entered by a court of competent jurisdiction. Upon being recorded in the manner required by state law or the Uniform Commercial Code, a lien may be imposed on the real or personal property of any defendant entering a plea of nolo contendere, pleading guilty to, or found guilty of a municipal code violation in the amount of any debt due the City under this section and enforced in the same manner as a judgment lien under a judgment of a court of competent jurisdiction. (1994 C., § 11.95.120; Ord. No. 69821, § 12, 7-28-2014.)

11.95.130 Schedule of administrative fines.

A. *Standard Fine.* Except as otherwise specifically set forth in Subsection B below, the administrative citation fine amount for a first violation of the City of St. Louis Revised Code or ordinance, or state regulation shall be one hundred and no/100 dollars ($100.00).

B. *Nonstandard Fines.*

Offense	Section	Administrative Citation Fine
No vaccination -registration certificate	10.04.050	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
No rabies vaccination tag	10.04.060	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Unleashed or loose dog	10.04.220	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Unauthorized use of registration tag	10.04.080 and 10.04.100	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Unleashed or loose cat	10.04.225	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Refusal to surrender biting dog	10.04.230	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Failure to comply with dangerous dog registration	10.04.270	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Dogfighting	10.04.280	$500.00
Violation of tethering, confinement and treatment of dogs and cats on owner/guardian's property	10.04.285	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Failure to remove dog feces	10.04.310	$100.00 1st offense, $300.00 2nd, $500.00 3rd and subsequent
Cruelty to animal(s)	10.12.010 and 10.20.017	$250.00 1st offense, $500.00 2nd and subsequent
Possession of prohibited and/or wild animals	10.20.015 and 10.24.010	$250.00
More than 4 animals without kennel permit	10.20.011 and 10.20.012	$250.00
No fumigation permit	11.08.020	$250.00
Illegal dumping of waste, refuse, inert matter, or demolition material	11.02.365 and 11.08.510	$250.00
Permitting or allowing rat infestation	11.08.410 and 11.08.420 and 11.08.500	$250.00
Accumulation and/or illegal dumping of garbage, rubbish, refuse, inert matter, and/or demolition material	11.08.520 and 11.18.060 and 11.02.365 and 11.08.510	$250.00
Removal or covering of posted grade or Health Commissioner's order	11.42.232 10-101.38C	$500.00
Manufacturing, producing, selling or offer for sale diseased, corrupted, adulterated, or unwholesome food or drink	11.40.010 and 11.48.120	$500.00
Operating a food establishment without required health permit and/or violation of Health Commissioner's orders of cessation	11.42.232 10-101.43G	$500.00
Refusal or interference with inspection or sampling of food establishment	11.42.232 10-101.40 and 10-101.41	$500.00
Refusal or interference with sanitary inspection of any premises for discovery or abatement of nuisance	11.58.160	$250.00

Offense	Section	Administrative Citation Fine
Insufficient heat/no heat	25.32.320 and 25.32.330	$100.00, $250.00 during cold weather warnings
Snow removal (requiring snow removal of ice and snow from sidewalk)	11.18.210	$100.00
Nuisance/no water	11.58.050	$250.00

C. *Imminent Hazards to Health/Safety.* The administrative fine for violation of any code provision, including those set forth in Subsection B, Nonstandard Fines, shall be $500.00 if the code official indicates on the notice of violation that the violation is an imminent hazard to the health or safety of the City of St. Louis.

D. *Repeat Violations.* The administrative citation fine for repeat violations designated for nonstandard fines of the same code provision by the same person or at the same property within twelve months from the date of the first administrative citation shall be five hundred and no/100 dollars ($500.00).

E. *Late Penalty.* Any administrative citation fine which is not paid on or before its due date shall accrue a penalty in an amount equal to the original administrative citation fine. Said penalty shall be collected in the same manner as the underlying fine. (1994 C., § 11.95.130; Ord. No. 69821, Exh. A(§§ 1—5), 7-28-2014.)

Chapter 11.100

UNPAID LEAVE FOR VICTIMS OF DOMESTIC VIOLENCE, SEXUAL VIOLENCE, AND STALKING

Sections:

11.100.010 Definitions.
11.100.020 Leave Requirements.
11.100.030 Employment and Benefits.
11.100.040 Violations.
11.100.050 Reasonable Accommodations.
11.100.060 Penalty.
11.100.070 Notification.
11.100.080 Effect on other Laws and Employment Benefits.

11.100.010 Definitions.

As used in this chapter, the following terms and phrases shall be taken to have the meaning ascribed to them in this section, to wit:

A. "Director": the Executive Director of the St. Louis Civil Rights Enforcement Agency;

B. "Domestic violence": the same meaning as in RSMo 455.010;

C. "Employ": the act of employing or state of being employed, engaged, or hired to perform work or services of any kind or character within the City of St. Louis;

D. "Employee": any person performing work or service of any kind or character for hire within the City of St. Louis;

E. "Employer": the City or any agency of the City, a political subdivision of the City, or any person or entity that employs at least fifteen employees;

F. "Employee benefit plan" or "plan": an employee welfare benefit plan or an employee pension benefit plan or a plan which is both an employee welfare benefit plan and an employee pension benefit plan;

G. "Employment benefits": all benefits provided or made available to employees by an employer, including group life insurance, health insurance, disability insurance, sick leave, annual leave, educational benefits, pensions, and profit-sharing, regardless of whether such benefits are provided by a practice or written policy of an employer or through an "employee benefit plan";

H. "Family or household member," for employees with a family or household member who is a victim of domestic violence: a spouse, parent, son, daughter, other person related by blood or by present or prior marriage, other person who shares a relationship through a son or daughter, and persons jointly residing in the same household;

I. "Parent": the biological parent of an employee or an individual who stood in loco parentis to an employee when the employee was a son or daughter;

J. "Person": an individual, partnership, association, corporation, business trust, legal representative, or any organized group of persons;

K. "Public agency": the government of the City or political subdivision thereof, any agency of the City, or of a political subdivision of the City, or any governmental agency;

L. "Public assistance" includes cash, food stamps, medical assistance, housing assistance, and other benefits provided on the basis of income by a public agency or public employer;

M. "Qualified individual," in the case of"

1. An applicant or employee of an employer: an individual who, but for being a victim of domestic violence or with a family or household member who is

a victim of domestic violence, can perform the essential functions of the employment position that such individual holds or desires; or

2. An applicant for or recipient of public assistance from a public agency: an individual who, but for being a victim of domestic violence or with a family or household member who is a victim of domestic violence, can satisfy the essential requirements of the program providing the public assistance that the individual receives or desires;

N. "Reasonable accommodation": an adjustment to a job structure, workplace facility, or work requirement, including a transfer, reassignment, modified schedule, leave, a changed telephone number or seating assignment, installation of a lock, implementation of a safety procedure, or assistance in documenting domestic violence that occurs at the workplace or in work-related settings, in response to actual or threatened domestic violence. Any exigent circumstances or danger facing the employee or his or her family or household member shall be considered in determining whether the accommodation is reasonable;

O. "Reduced work schedule": a work schedule that reduces the usual number of hours per workweek, or hours per workday, of an employee;

P. "Sexual violence": any act of rape, sexual assault, sexual abuse, or stalking of an adult or minor child, including, but not limited to, non-consensual sexual conduct or non-consensual sexual penetration and the offenses of rape, child molestation, sexual misconduct, or sexual abuse as those offenses are described in RSMo Ch. 566i.

Q. "Son or daughter": a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis, who is under eighteen years of age, or is eighteen years of age or older and incapable of self-care because of a mental or physical disability;

R. "Stalking": first-degree or second-degree stalking as defined in RSMo Ch. 565.

S. "Undue hardship": significant difficulty or expense, when considered in light of the following factors:

1. The nature and cost of the reasonable accommodation;

2. The overall financial resources of the facility involved in the provision of the reasonable accommodation, the number of persons employed at such facility, the effect on expenses and resources, or the impact otherwise of such accommodation on the operation of the facility;

3. The overall financial resources of the employer or public agency, the overall size of the business of an employer or public agency with respect to the number of employees of the employer or public agency, and the number, type, and location of the facilities of an employer or public agency; and

4. The type of operation of the employer or public agency, including the composition, structure, and functions of the workforce of the employer or public agency, the distance of the facility from the employer or public agency, and the administrative or fiscal relationship of the facility to the employer or public agency;

T. "Victim": an individual who has been subjected to domestic violence, sexual violence, or stalking;

U. "Victim services organization": a nonprofit, nongovernmental organization that provides assistance to victims of domestic violence, sexual violence, or stalking; or advocates for such victims, including a rape crisis center, an organization carrying out a domestic violence program, an organization operating a shelter or providing counseling services, or a legal services organization providing assistance through the legal process;

V. "Work": any job, task, labor, services, or any other activity for which compensation is provided, expected, or due. (1994 C., § 11.100.010; Ord. No. 70523, § 1, 3-2-2017.)

11.100.020 Leave Requirements.

A. An employee who is a victim of domestic violence, sexual violence, or stalking, or has a family or household member who is a victim of domestic violence, sexual violence, or stalking whose interests are not adverse to the employee as it relates to the domestic violence, sexual violence, or stalking may take unpaid leave from work to address such violence by:

1. Seeking medical attention for, or recovering from, physical or psychological injuries caused by domestic violence, sexual violence, or stalking to the employee or the employee's family or household member;

2. Obtaining services from a victim services organization for the employee or the employee's family or household member;

3. Obtaining psychological or other counseling for the employee or the employee's family or household member;

4. Participating in safety planning, temporarily or permanently relocating, or taking other actions to increase the safety of the employee or the employee's family or household member from future domestic violence, sexual violence, stalking, or ensure economic security; or

5. Seeking legal assistance or remedies to ensure the health and safety of the employee or the employee's family or household member, including preparing for or participating in any civil or criminal legal proceeding related to or derived from domestic violence.

B. An employee working for an employer that employs at least fifty employees shall be entitled to a total of two workweeks of leave under Subsection A of this section during any twelve-month period. An employee working for an employer that employs at least fifteen but not more than forty-nine employees shall be entitled to a total of one workweek of leave during any twelve-month period. The total number of workweeks to which an employee is entitled shall not decrease during the relevant twelve-month period. This section shall not create a right for an employee to take unpaid leave that exceeds the amount of unpaid leave time allowed under the federal Family and Medical Leave Act of 1993 (29 U.S.C. 2601 et seq.).

C. Leave described in this chapter may be taken intermittently or on a reduced work schedule.

D. The employee shall provide the employer with at least forty-eight hours' advance notice of the employee's intention to take leave, unless providing such notice is not practicable. When an unscheduled absence occurs, the employer may not take any action against the employee if the employee, upon request of the employer and within a reasonable period after the absence, provides certification under Subsection E of this section.

E. The employer may require the employee to provide certification to the employer that the employee or the employee's family or household member is a victim of domestic violence, sexual violence, or stalking and that the leave is for one of the purposes enumerated in Subsection A of this section. The employee shall provide such certification to the employer within a reasonable period after the employer requests certification.

F. An employee may satisfy the certification requirement of Subsection E of this section by providing to the employer, a sworn statement of the employee and the following:

1. Documentation from an employee, agent, or volunteer of a victim services organization, an attorney, a member of the clergy, or a medical or other professional from whom the employee or the employee's family or household member has sought assistance in addressing domestic violence, sexual violence, or stalking and the effects of the violence;

2. A police or court record; or

3. Other corroborating evidence.

G. All information provided to the employer pursuant to Subsection F of this section, including a statement of the employee or any other documentation, record, or corroborating evidence, and the fact that the employee has requested or obtained leave pursuant to this section, shall be retained in the strictest confidence by the employer, except to the extent that disclosure is requested or consented to in writing by the employee or otherwise required by applicable federal or state law.

H. Any employee who takes leave under this section shall be entitled, on return from such leave, to be restored by the employer to the position of employment held by the employee when the leave commenced or an equivalent position with equivalent employment benefits, pay, and other terms and conditions of employment.

I. The taking of leave under this chapter shall not result in the loss of any employment benefit accrued prior to the date on which the leave commenced. Nothing in this section shall be construed to entitle any restored employee to the accrual of any seniority or employment benefits during any period of leave or any right, benefit, or position of employment other than any right, benefit, or position to which the employee would have been entitled had the employee not taken the leave. Nothing in this section shall be construed to prohibit an employer from requiring an employee on leave under this section to report periodically to the employer on the status and intention of the employee to return to work. (1994 C., § 11.100.020; Ord. No. 70523, § 2, 3-2-2017.)

11.100.030 Employment and Benefits.

A. During any period that an employee takes leave under this chapter, the employer shall maintain coverage for the employee and any family or household

member under any group health plan for the duration of such leave at the level and under the conditions coverage would have been provided if the employee had continued in employment continuously for the duration of such leave.

B. The employer may recover the premium that the employer paid for maintaining coverage for the employee and the employee's family or household member under such group health plan during any period of leave under this chapter if the employee fails to return from leave after the period of leave to which the employee is entitled has expired for a reason other than the continuation, recurrence, or onset of domestic violence, sexual violence, or stalking that entitled the employee to leave under this chapter; or other circumstances beyond the control of the employee.

C. An employer may require an employee who claims that the employee is unable to return to work because of a reason described in Subsection B of this section to provide, within a reasonable period after making the claim, certification to the employer that the employee is unable to return to work because of that reason by providing the employer with:

1. A sworn statement of the employee;

2. Documentation from an employee, agent, or volunteer of a victim services organization, an attorney, a member of the clergy, or a medical or other professional from whom the employee has sought assistance in addressing domestic violence, sexual violence, and stalking and the effects of that violence;

3. A police or court record; or

4. Other corroborating evidence.

D. All information provided to the employer pursuant to Subsection C of this section, including a statement of the employee or any other documentation, record, or corroborating evidence, and the fact that the employee is not returning to work because of a reason described in Subsection B of this section, shall be retained in the strictest confidence by the employer, except to the extent that disclosure is requested or consented to in writing by the employee; or otherwise required by applicable federal or state law. (1994 C., § 11.100.030; Ord. No. 70523, § 3, 3-2-2017.)

11.100.040 Violations.

A. It shall be unlawful for any employer to interfere with, restrain, or deny the exercise of or the attempt to exercise any right provided under this chapter.

B. It shall be unlawful for any employer to discharge or harass any individual, or otherwise discriminate against any individual with respect to compensation, terms, conditions, or privileges of employment of the individual, including retaliation in any form or manner, because the individual exercised any right provided under this chapter or opposed any practice made unlawful by this chapter.

C. It shall be unlawful for any public agency to deny, reduce, or terminate the benefits of, otherwise sanction, or harass any individual, or otherwise discriminate against any individual with respect to the amount, terms, or conditions of public assistance of the individual, including retaliation in any form or manner, because the individual exercised any right provided under this chapter or opposed any practice made unlawful by the Ordinance.

D. It shall be unlawful for any employer to discharge or in any other manner discriminate, as provided in Subsection B or C of this section, against any individual because such individual has:

1. Filed any charge, or has instituted or caused to be instituted any proceeding under or related to this chapter;

2. Given, or is about to give, any information in connection with any inquiry or proceeding relating to any right provided under this chapter; or

3. Testified, or is about to testify, in any inquiry or proceeding relating to any right provided under this chapter.

E. An employer shall not fail to hire, refuse to hire, discharge, constructively discharge, or harass any individual, otherwise discriminate against any individual with respect to the compensation, terms, conditions, or privileges of employment of the individual, or retaliate against an individual in any form or manner, and a public agency shall not deny, reduce, or terminate the benefits of, otherwise sanction, or harass any individual, otherwise discriminate against any individual with respect to the amount, terms, or conditions of public assistance of the individual, or retaliate against an individual in any form or manner, because:

1. The individual involved is or is perceived to be a victim of domestic violence, sexual violence, or stalking;

2. The individual involved attended, participated in, prepared for, or requested leave to attend, participate in, or prepare for a criminal or civil court proceeding relating to an incident of domestic violence, sexual

violence, or stalking of which the individual or a family or household member of the individual was a victim, or requested or took leave for any other reason provided under this chapter; or

3. The individual involved requested a reasonable accommodation in response to actual or threatened domestic violence, sexual violence, or stalking, regardless of whether the request was granted; or

4. The workplace is disrupted or threatened by the action of a person whom the individual states has committed or threatened to commit domestic violence, sexual violence, or stalking against the individual or the individual's family or household member. (1994 C., § 11.100.040; Ord. No. 70523, § 4, 3-2-2017.)

11.100.050 Reasonable Accommodations.

A. Employers and public agencies shall make reasonable accommodation, in a timely manner, to the known limitations resulting from circumstances relating to being a victim of domestic violence, sexual violence, or stalking or a family or household member being a victim of domestic violence, sexual violence, or stalking of an otherwise qualified individual:

1. Who is:

a. An applicant or employee of the employer; or

b. An applicant for or recipient of public assistance from a public agency; and

2. Who is:

a. A victim of domestic violence, sexual violence or stalking; or

b. With a family or household member who is a victim of domestic violence, sexual violence, or stalking whose interests are not adverse to the individual in this subdivision as it relates to the domestic violence, sexual violence, or stalking;

B. Subsection A of this section shall not apply if the employer or public agency can demonstrate that the accommodation would impose an undue hardship on the operation of the employer or public agency. (1994 C., § 11.100.050; Ord. No. 70523, § 5, 3-2-2017.)

11.100.060 Penalty.

The City Counselor may investigate alleged or suspected violations of this chapter. Any person who violates the provisions of this chapter shall be subject to of a fine of not more than five hundred dollars ($500.00) per violation. (1994 C., § 11.100.060; Ord. No. 70523, § 6, 3-2-2017.)

11.100.070 Notification.

Every employer covered by sections this chapter shall post and keep posted, in conspicuous places on the premises of the employer where notices to employees are customarily posted, a notice, to be prepared or approved by the director, summarizing the requirements of this chapter. (1994 C., § 11.100.070; Ord. No. 70523, § 7, 3-2-2017.)

11.100.080 Effect on other Laws and Employment Benefits.

A. Nothing in this chapter shall be construed to supersede any provision of any federal, state, or local law, collective bargaining agreement, or employment benefits program or plan that provides:

1. Greater leave benefits for victims of domestic violence, sexual violence, or stalking than the rights established under this chapter; or

2. Leave benefits for a larger population of victims of domestic violence, sexual violence, or stalking, as defined in such law, agreement, program, or plan, than the victims of domestic violence, sexual violence, or stalking covered under this chapter.

B. The rights established for applicants and employees who are victims of domestic violence, sexual violence, or stalking and applicants and employees with a family or household member who is a victim of domestic violence, sexual violence, or stalking under this chapter shall not be diminished by any federal, state or local law, collective bargaining agreement, or employment benefits program or plan. (1994 C., § 11.100.080; Ord. No. 70523, § 8, 3-2-2017.)

Chapter 11.105

RESIDENTIAL LANDLORD-TENNANT RELATIONS; EVICTIONS

Sections:

11.105.010 Definitions.
11.105.020 Illegal eviction.
11.105.030 Nonwaiverability.
11.105.040 Nonexclusivity of remedy.
11.105.050 Illegal to collect rent for period while tenant is illegally evicted.
11.105.060 Penalty for violation.

11.105.010 Definitions.

For the purpose of this chapter the following words or phrases shall have the meaning given herein.

A. "Landlord" means the owner or lessor of residential premises or a person authorized by the owner to exercise any aspect of the management of residential premises;

B. "Lease" means a written or oral agreement for the use or possession of premises;

C. "Tenant" means a person who occupies the premises with the landlord's consent;

D. "Premises" means land, tenements, condominium or cooperative units, and all other types of residential real property subject to a lease between a landlord and a tenant, including any facilities and appurtenances to such premises, and any grounds, areas and facilities held out for the use of tenants generally or the use of which is promised to the tenant. "Premises" include structures, fixed or mobile, temporary or permanent, vessels, manufactured homes as defined in RSMo 700.010, mobile trailer homes and vehicles which are used or intended for use primarily as a dwelling;

E. "Rent" means a stated payment for the temporary possession or use of a house, land or other real property, made at fixed intervals by a tenant to a landlord;

F. "Public utility provider" includes every provider of a "public utility," as that term is defined in RSMo Ch. 386 and subject to the jurisdiction, control and regulation of the Missouri Public Services Commission. (Ord. No. 70624, § 1, 10-24-2017)

11.105.020 Illegal eviction.

A. A landlord, its agent, or any person commits the offense of illegal eviction by removing or excluding a tenant or the tenant's personal property from the premises without judicial process and court order, or by causing such removal or exclusion, or by causing the removal of the doors or locks to such premises, or by willfully diminishing services to a tenant by interrupting or causing the interruption of essential services, including, but not limited to, electric, gas, water, or sewer service, to the premises.

B. A person does not commit the offense of illegal eviction by taking action to interrupt or diminish essential services to the premises if such action is taken for legitimate health or safety reasons. Neither shall this section apply to any public utility provider who causes the interruption or diminishment of services to a tenant or a premises.

C. Provided that the landlord or its agent acts in full compliance with RSMo 441.065, a person does not commit the offense of illegal eviction if the tenant abandons the premises. (Ord. No. 70624, § 2, 10-24-2017)

11.105.030 Nonwaiverability.

Any waiver of this provision in any lease or other rental agreement shall be void, except with respect to any restriction on the provision of a service specified in this section imposed by the United States or any agency thereof, or the State of Missouri or any political subdivision thereof, and not resulting from the acts or omissions of the landlord, and except for interruptions of any specified service during the time required to perform necessary repairs or inspections to apparatuses necessary for the delivery of said service or interruptions resulting from natural causes beyond the control of the landlord. (Ord. No. 70624, § 3, 10-24-2017)

11.105.040 Nonexclusivity of remedy.

A tenant may pursue any civil remedy for violation of this section regardless of whether or not a fine has been assessed to the landlord pursuant to this section, and nothing in this chapter shall reduce the amount that a tenant may recover in such civil action. (Ord. No. 70624, § 4, 10-24-2017)

11.105.050 Illegal to collect rent for period while tenant is illegally evicted.

It shall be unlawful for any landlord or other person, firm, partnership, corporation, or any other legal entity to collect rent from a tenant for a premises for the period that the tenant is or has been illegally evicted from the premises. (Ord. No. 70624, § 5, 10-24-2017)

11.105.060 Penalty for violation.

Any person who violates the provisions of this chapter shall be subject to of a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment not more than ninety (90) days or both a fine and term of imprisonment. (Ord. No. 70624, § 6, 10-24-2017)

Chapter 11.106

RIGHT TO COUNSEL PROGRAM FOR RESIDENTIAL TENANTS FACING EVICTION

Sections:

11.106.010	**Appropriation; establishment of program.**
11.106.020	**Definitions.**
11.106.030	**Coordinator responsibilities.**
11.106.040	**General provisions of right to counsel for tenants in covered proceedings.**
11.106.050	**Designated organizations.**
11.106.060	**Implementation.**
11.106.070	**Engagement and education.**

11.106.010 Appropriation; establishment of program.

There is hereby appropriated the sum of $285,000.00 of the Coronavirus Local Fiscal Recovery Funds to the Department of Human Services ("DHS") to establish and administer a Right to Counsel program for residential tenants facing eviction in the City of St. Louis. The Director of DHS, or their designee, is hereby authorized to make, negotiate, and execute any and all contracts or other documents on behalf of the City to expend such funds, and to expend such funds on behalf of the City for certain purposes substantially in accordance with the purposes outlined herein. The Comptroller is authorized and directed to issue warrants upon the City Treasurer for payment of all expenditures authorized in this Section provided that such warrants do not exceed the total amount of fund appropriated by this Section.
(Ord. No. 71694, § 1, 7-12-2023)

11.106.020 Definitions.

City means the City of St. Louis.

Coordinator means there shall be established within DHS a Tenant Legal Services Coordinator who will administer and oversee the Program, including but not limited to all of the provisions in Section 11.106.030 of this chapter, as well as any necessary supporting positions.

Covered Individual means any residential tenant who occupies a dwelling located within the City under a claim of legal right, other than the legal property owner of the dwelling.

Covered Proceeding means any judicial or administrative proceeding to evict or terminate the tenancy or housing subsidy of a covered individual; any proceeding deemed by a Designating Organization to be the equivalent of such a proceeding; any first appeal of such a proceeding, including any judicial or administrative proceeding, if the Designated Organization deems there is a meritorious case for appealing the decision of the judicial or administrative body; any civil judicial action to secure relief for an extra-judicial eviction effectuated in violation of the City of St. Louis Ordinance Number 70624 and RSMo 441.233; any civil judicial action to secure relief for an unlawful utility disconnection in violation of the City of St. Louis Ordinance Number 70624; or other civil judicial or administrative actions as deemed necessary by the Designated Organization to provide adequate and ethical representation and defense to the Covered Individual.

Designated Organization means one (1) or more organizations, associations or persons that have been selected, pursuant to required contracting procedures, by the City of St. Louis to provide legal representation to covered individuals in covered proceedings.

Designated Community Group means a not-for-profit community organization or association designated by the Coordinator and/or the Designated Organization that has the capacity to conduct tenant outreach, engagement, education, and information regarding this chapter.

Full legal representation means ongoing legal representation provided by a designated organization to a covered individual, and all legal advice, advocacy, and assistance associated with that representation, that is required to provide the best possible outcome for a particular case. Where representation is provided subsequent to the filing of an eviction, "full legal representation" includes the filing of a notice of appearance on behalf of the covered individual in a covered proceeding. Full legal representation shall be provided by a lawyer licensed to practice in the State of Missouri.
(Ord. No. 71694, § 2, 7-12-2023)

11.106.030 Coordinator responsibilities.

A. The coordinator shall establish a program to provide access to full legal representation in covered proceedings to covered individuals of the City to provide such individuals with access to full legal representation as provided under this chapter no later than July 1, 2024.

B. Subsequent to the first year the program operates, the coordinator shall estimate annually the expenditures required for each year of implementation of the program described herein and shall publish a summary to the Director of DHS of any changes to such estimates for expenditures. The estimate of required expenditures shall be sufficient to enable designated legal organizations to provide high quality assistance.

C. The coordinator shall annually review the performance of the program and the designated organizations and shall submit a report to the Director of DHS, no later than December 31 of each year. The report shall be posted on the city's website and shall include information from the prior fiscal year regarding:

1. The number of covered individuals served;
2. The extent of legal representation performed;
3. Metrics on evaluating outcomes;
4. The engagement and education of tenants; and
5. Instances of serial filings on the same individual or household at the same property, to the extent such information is available.

(Ord. No. 71694, § 3, 7-12-2023)

11.106.040 General provisions of right to counsel for tenants in covered proceedings.

A. A covered individual may access legal representation as provided in this chapter as soon as a landlord provides notice to terminate or not renew a tenancy, or as soon thereafter as is practicable.

B. Subject to provisions of this chapter, including any rules and regulations, the Coordinator shall develop an intake system to provide Covered Individuals with legal representation from a Designated Organization in a Covered Proceeding as soon as practicable after the covered individual's request for such services.

C. As provided under this chapter, covered individuals shall receive legal representation from their assigned Designated Organization unless a conflict with the Missouri attorneys' rules of professional conduct make legal representation infeasible to render, as determined by their assigned Designated Organization. The assigned Designated Organization shall report such conflict to the Coordinator, who shall refer the case as soon as possible to another Designated Organization.

D. A landlord serving a notice to terminate tenancy upon a tenant must simultaneously provide written notification of the tenant's ability to access legal representation under the program created by this chapter and how to access it. The Coordinator shall design a notice form providing this information and make it available for use by property owners for this purpose.

(Ord. No. 71694, § 4, 7-12-2023)

11.106.050 Designated organizations.

A. Subject to appropriation, the Coordinator shall provide each Designated Organization assigned pursuant to this chapter with fair and just compensation which will allow each Designated Organization to provide high quality representation and legal work with appropriate supervision, caseloads, and oversight of staff.

B. The Coordinator shall annually designate appropriate program caseload caps for attorneys providing representation for the program.

C. Each Designated Organization shall report to the Coordinator the following information, consistent with any contractual terms and deadlines set by any agreements between the Designated Organization and Coordinator:

1. Number of covered individuals served;
2. Household makeup including age, race, gender, number of household members, income, estimated length of tenancy, type of lease, receipt of public assistance at the time of service;
3. Reason for covered proceeding;
4. Extent of legal representation provided;
5. Case dispositions; and
6. Instances where the attorney was discharged or withdrew.

(Ord. No. 71694, § 5, 7-12-2023)

11.106.060 Implementation.

A. There is established within DHS or its successor entity the Coordinator position to implement and oversee the provision of counsel for individuals in covered proceedings;

B. Within sixty (60) days of the passage of this chapter, the City shall post the Coordinator position to hire a qualified candidate.

C. No later than one hundred and twenty (120) days after hiring the Coordinator, the Coordinator shall develop and publish to the Director of DHS an administrative plan to implement the program. The administrative plan shall include a strategy for increasing the capacity of the program to meet the target caseloads identified in Exhibit A of this chapter. The administrative plan shall be designed and implemented no later

than July 1, 2024, with individuals located in the zip codes with the highest number of eviction filings being prioritized for services. Representation for Covered Individuals shall become available no later than July 1, 2024.

D. Subsequent to the initial appropriation of Coronavirus Local Fiscal Recovery Funds outlined herein, the City shall designate a source of annual funding for this chapter for each fiscal year.
(Ord. No. 71694, § 6, 7-12-2023)

11.106.070 Engagement and education.

In addition to overseeing the administration of this chapter, the Coordinator shall work with designated community groups to engage and educate tenants and others about the program, including:

1. Distributing written information to tenants and property owners;

2. Assisting tenants to form and maintain tenant associations;

3. Referring tenants to designated community groups; and

4. Engaging in any other activity designed to engage, educate or inform tenants about their rights.
(Ord. No. 71694, § 7, 7-12-2023)

Chapter 11.110

RECREATIONAL FIRES

Sections:

11.110.010 Definition of recreational fire.

11.110.020 Conduct and management of recreational fires.

11.110.030 Penalty.

11.110.010 Definition of recreational fire.

Recreational fire is an outdoor fire, burning fuel other than refuse, leaves, grass, treated wood, building materials, paper, or logs larger than four (4) inches in diameter, where the fuel is not contained in an incinerator, outdoor fireplace, portable outdoor fireplace, barbeque grill or barbeque pit, has a total fuel area no more than thirty (30) inches in diameter and eighteen (18) inches in height, used for pleasure, religious, ceremonial, cooking, warmth or similar purposes. (Ord. No. 70932, § 1, 5-2-2019.)

11.110.020 Conduct and management of recreational fires.

A. Recreational fires may not be located within twelve (12) feet of any structure, including a fence or deck. Conditions which would cause a fire to spread to within twelve (12) feet of a structure must be eliminated prior to ignition.

B. Recreational fires must be attended by a competent individual, who is at least sixteen years of age, until completely extinguished.

C. Recreational fires must be extinguished within four (4) hours following ignition, and in no case will a fire be allowed to burn later than 11:00 pm. A means to extinguish the recreational fire such as a fire extinguisher, garden hose, or a bucket of water or sand must be readily at hand, and in no case more than fifteen (15) feet in distance from the fuel area.

D. Recreational fire that is offensive or objectionable due to excessive or lingering smoke or odor emissions is prohibited.

E. Recreational fires are not permitted if winds are greater than fifteen (15) miles per hour.

F. City of St. Louis health and public safety authorities may prohibit, suspend or further restrict recreational fires should conditions warrant such action. (Ord. No. 71260, § 1, 12-18-2020; Ord. No. 70932, § 2, 5-2-2019.)

11.110.030 Penalty.

Any person who violates the provisions of this chapter shall be subject to a fine of not less than one-hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety days (90) or both a fine and term of imprisonment. (Ord. No. 70932, § 3, 5-2-2019.)

Chapter 11.115

CONVERSION THERAPY

Sections:

11.115.010 Definitions.

11.115.020 Prohibited practice.

11.115.030 Health department functions, duties and authorities.

11.115.040 Complaints.

11.115.050 Penalty for violation.

11.115.010 Definitions.

As used in this chapter the following terms shall have the meanings prescribed below in this Section One.

1. *Conversion therapy* means any practice or treatment that seeks to change an individual's sexual orien-

tation or gender identity, including efforts to change behaviors or gender expressions or to eliminate or reduce sexual or romantic attractions or feelings toward individuals of the same gender. Conversion therapy shall not include counseling that provides support and assistance to a person undergoing gender transition, or counseling that provides acceptance, support and understanding of a person or facilitates a person's coping, social support, and development, including sexual orientation-neutral treatment interventions to prevent or address unlawful conduct or unsafe sexual practices, as long as such counseling does not seek to change sexual orientation or gender identity. Conversion therapy is sometimes commonly known or referred to as reparative therapy, sexual orientation or gender identity change efforts, or ex-gay therapy.

2. *Complaint* means a written allegation that a provider has violated or is in violation of this chapter.

3. *Department of Health* means the City of St. Louis Department of Health.

4. *Gender identity or expression* means the gender-related identity, appearance, expression, behavior or mannerisms or other gender-related characteristics of an individual, with or without regard to the individual's designated sex at birth.

5. *Minor* means any person under eighteen (18) years of age.

6. *Provider* means any licensed medical or mental healthcare professional including, but not limited to, licensed professional counselors, licensed psychologists, licensed clinical social workers, provisional licensed professional counselors, provisional and temporary licensed psychologists, licensed and provisional licensed marital and family therapists, psychiatrists, certified substance abuse counselors, certified school counselors, behavior analysts and any other medical or mental healthcare professional licensed under RSMo Chapters 334 and 337.

7. *Sexual orientation* means the practice of homosexuality, heterosexuality, asexuality, and bisexuality, or some combination thereof, by consenting adults, or as perceived by others, but not including sexual practice between an adult and a minor. (Ord. No. 71064, § 1, 12-23-2019.)

11.115.020 Prohibited practice.

It shall be unlawful for any provider to provide conversion therapy or reparative therapy to a minor, if the provider receives compensation in exchange for such services. (Ord. No. 71064, § 2, 12-23-2019.)

11.115.030 Health Department functions, duties and authorities.

The City of St. Louis Health shall have the following functions, duties and authorities regarding the investigation of alleged violations of this chapter and its enforcement:

- To adopt rules, regulations and guidelines pertaining to the submission, receipt, investigation and disposition, and referral for prosecution of complaints consistent with the provisions of this chapter.
- To receive and investigate complaints alleging a provider has violated or is in violation of this chapter.
- To cooperate with other organizations, public and private to discourage the practice of conversion therapy for minors. (Ord. No. 71064, § 3, 12-23-2019.)

11.115.040 Complaints.

Any individual who claims to be aggrieved by a violation of this chapter may file a written complaint with the Department of Health stating the name and address of the provider alleged to have committed such violation, the particulars thereof, and such other information as may be required by the Department of Health. All complaints must be filed within one-hundred and eighty days of the date of the alleged violation. (Ord. No. 71064, § 4, 12-23-2019.)

11.115.050 Penalty for violation.

Any provider found to be in violation of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00). (Ord. No. 71064, § 5, 12-23-2019.)

REVISED CODE

OF THE CITY OF

SAINT LOUIS, 2020, ANNOTATED

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

Volume II

TABLE OF CONTENTS

Volume I

Preface

Supplement History Table

Charter (C-1—C-100)

Title 1 **General Provisions**

Title 2 **Elections**

Title 3 **Administration**

Title 4 **Personnel**

Title 5 **Revenue and Finance**

Title 6 **Contracts for Public Works**

Title 7 **(Reserved)**

Title 8 **Business Taxes, Licenses and Regulations**

Title 9 **Weights and Measures**

Title 10 **Animals**

Title 11 **Health and Safety**

Volume II

Title 12 **Hospitals and Physicians**

Title 13 **(Reserved)**

Title 14 **Alcoholic Beverages**

Title 15 **Public Peace, Morals and Welfare**

Title 16 **Prisoners and Ex-convicts**

Title 17 **Vehicles and Traffic**

Title 18 **Airports and Aviation**

Title 19 **(Reserved)**

Title 20 **Streets, Sidewalks and Bridges**

Title 21 **Harbors and Wharves**

Title 22 **Parks, Recreation and Forestry**

Title 23 **Public Utilities**

Title 24 **Cultural Resources**

Title 25 Buildings and Construction

Title 26 Zoning

Tables

Index

Title 12

HOSPITALS AND PHYSICIANS

Charter:

Art. XIII § 14-C Department of health and hospitals

RSMo:

RSMo 205.160—205.379 (2016) County hospitals

McQuillin:

47.13 Municipal hospitals, asylums, etc.

Chapters:

12.04 **Miscellaneous Hospital Provisions**

12.08 **Division of Hospitals**

12.12 **Hospital Staffs**

12.16 **Robert Koch Tuberculosis Hospital**

12.20 **Harry S. Truman Restorative Center**

12.24 **Psychiatric Clinic**

12.28 **Snodgrass Laboratory**

12.32 **Dispensaries**

12.36 **Private Hospitals**

12.40 **Section of Social Service and Investigation**

12.44 **Registration of Physicians, Surgeons and Midwives**

12.48 **Payment by Patients at City Hospitals**

12.52 **Nurses**

12.56 **Reporting Gunshot and Knife Wounds**

Chapter 12.04

MISCELLANEOUS HOSPITAL PROVISIONS

Editor's Note:

Provisions pertaining to City hospitals are included for historical purposes only. The City no longer owns or operates hospitals. See *Brock v. City of St. Louis*, 724 S.W.2d 721 (Mo.App.E.D. 1987).

Sections:

12.04.010 **Bonds.**

12.04.020 **Employee meals.**

12.04.030 **Malcolm Bliss Mental Health Center.**

12.04.040 **Max C. Starkloff Hospital.**

12.04.050 **Coin-operated television sets—Agreement.**

12.04.060 **Coin-operated television sets—Bids.**

12.04.070 **Parking—Permit—Issuance.**

12.04.080 **Parking—Permit—Effect.**

12.04.090 **Parking—Permit—Required.**

12.04.100 **Parking—Fine—Towing vehicle.**

12.04.110 **Parking—Watchmen—Appointment.**

12.04.120 **Parking—Watchmen—Violation notices.**

12.04.010 Bonds.

The chief clerk at the City Hospital, the receiving room clerks at the City Hospital, and the chief clerk at the sanitarium shall give bonds as elsewhere provided in Section 12.48.020, conditioned for the faithful performance of their duties and that they will pay over to the City all moneys belonging to the City and will return to the patients all goods and chattels which may come into their possession. For any breach of the condition of the bond, suit may be instituted thereon by the City or in the name of the City by any person who may suffer loss or damage by reason of breach to the use of the person. (1948 C., Ch. 31, § 2; 1960 C., § 435.080; 1994 C., § 12.04.010.)

City Counselor Ops.: 8769

12.04.020 Employee meals.

All employees of the several sections of the hospital division who work more than eight hours per day, and for whom keep, residence or meals are not specifically provided in the annual standardization ordinance, or who, on account of being subject to emergency calls, do not receive a one-hour meal period, shall be entitled to one meal per day. (1948 C., Ch. 31, § 3; 1960 C., § 435.070; 1994 C., § 12.04.020.)

City Counselor Ops.: 8769

12.04.030 Malcolm Bliss Mental Health Center.

The psychopathic hospital erected between Carroll Street and Park Avenue and Grattan Street and Dillon Street shall be hereafter known and designated as the Malcolm Bliss Mental Health Center. (1948 C., Ch. 31, § 6; 1960 C., § 444.020; 1994 C., § 12.04.030; Ord. No. 48609, § 1, 1957.)

City Counselor Ops.: 8769

12.04.040 Max C. Starkloff Hospital.

The name of the institution owned and operated by the City and known as the City Hospital, located at

1515 Lafayette Avenue, is designated the Max C. Starkloff Hospital. (1948 C., Ch. 31, § 5; 1960 C., § 444.010; 1994 C., § 12.04.040.)

City Counselor Ops.: 8769

12.04.050 Coin-operated television sets—Agreement.

The City acting by and through the Mayor and the Comptroller may enter into an agreement with one or more of the companies offering to install coin-operated television sets in hospitals operated by the City which agreement or agreements shall read as follows:

THIS AGREEMENT, made and entered into this ____ day of _____, 1956, by and between _____ and the CITY OF ST. LOUIS, MISSOURI, a Municipal Corporation of the State of Missouri, WITNESSETH:

WHEREAS, _____

is engaged in the business of placing and installing and maintaining coin-operated television sets in hospitals in and about the City of St. Louis, Missouri, and The City of St. Louis owns, conducts and administers certain hospitals in or near the City of St. Louis, and

WHEREAS, _____

is desirous of placing its coin-operated television sets in said hospital(s) for use by the patients, and The City of St. Louis is willing to have such televisions sets so installed in said Hospitals;

NOW, THEREFORE, it is mutually agreed by and between the Parties hereto as follows:

(1) _____ shall place, install and maintain in said _____ Hospital coin-operated television sets in such rooms as shall be agreed upon between the administrators of such Hospital and the Officers of _____; and all such sets shall have a seventeen inch picture or larger and shall be all-channel sets.

(2) _____ shall pay to the Hospital Commissioner's Fund for the privilege of so installing such television sets, ____% of the gross receipts to be received and collected from said sets, payments of such ____% of the receipts to be made quarterly on the last day of March, June, September and December of each year during the life of this Agreement or any extension or renewal thereof.

(3) _____ shall have the right at all reasonable times, and at the convenience of the Hospitals, to repair, service and make collections from any or all of the television sets installed in the Hospitals, to substitute new or other sets for those already installed, if deemed necessary or convenient, and upon the termination of this agreement or any extension thereof, to remove from said Hospital all of the sets and all appurtenances thereto so installed by _____, it being understood that title to the television sets installed, and all appurtenances thereto, shall always remain in _____.

(4) The City of St. Louis by and through the Hospital Commissioner shall have the right to require said _____ to repair, replace or otherwise keep in good operating condition all television sets installed under the terms of this Agreement.

(5) During the terms of this Agreement or any renewal or extension thereof the City of St. Louis shall not permit the installation in said _____ Hospital of any coin-operated or rental television sets other than those covered by this Agreement, or such as shall be placed in said Hospital by, and rented from _____, it being understood that the authority herein granted to _____ for the installation of coin-operated or rental television sets in said Hospital is exclusive.

_____, shall not assign or transfer its interest in this contract without the written consent of the City of St. Louis.

(6) During the term of this contract and any extension or renewal thereof _____ shall carry, at its expense, comprehensive bodily injury liability insurance with limits of $25,000.00 for damages to any one person and $50,000.00 for damages arising from any one accident and property damage insurance with limits of $10,000.00 for damages arising from any actions of the Company, or its agents or employees or from any of its properties and shall hold the City of St. Louis harmless from any liability which may arise as the result of the actions or properties of _____, its agent or assignees.

This Agreement shall continue for a period of ____ years from the date hereof.

____

By _____

(SEAL)

_____

Mayor of the City of St. Louis

_____

Comptroller of the City of St. Louis

Attest:

_____

Register of the City of St. Louis (1994 C., § 12.04.050; Ord. No. 48168, § 1, 1957.)

12.04.060 Coin-operated television sets—Bids.

The Mayor and Comptroller, acting for the City, are hereby authorized and directed to execute and enter into said agreement as set out in Section 12.04.050 after competitive bids have been advertised for and received under the procedure established in such cases. (1994 C., § 12.04.060; Ord. No. 48168, § 2, 1957.)

12.04.070 Parking—Permit—Issuance.

The administrators or their designated assistants of the St. Louis City Hospitals, Max C. Starkloff Memorial and Homer G. Phillips, are authorized to designate parking spaces on the grounds of said City hospitals. The administrators shall issue permits for the privilege of parking in these designated spaces and shall post signs indicating proper color and number of permit to be allowed in each parking area. The administrators are authorized to require the permittee to place said sticker on the windshield of the vehicle in order that it might be readily identified. All such permits shall expire on September 1 next following the date of issuance. The administrators may revoke a permit at any time. The administrators shall issue permits to deputy sheriffs assigned to guard prisoners at City hospitals and provide for the movement of prisoners to and from the hospitals as is provided other emergency vehicles. (1994 C., § 12.04.070; Ord. No. 56656, § 1, 1974; Ord. No. 56024, § 1, 1971.)

Editor's Note:

Ordinance 56656 appears to supersede Ordinance 56024, but the latter has been codified here because it was not specifically repealed.

12.04.080 Parking—Permit—Effect.

Permits issued by the administrators of City hospitals for parking spaces shall be in effect daily, Sundays and legal holidays. (1994 C., § 12.04.080; Ord. No. 56656, § 2, 1974; Ord. No. 56024, § 2, 1971.)

Editor's Note:

Ordinance 56656 appears to supersede Ordinance 56024, but the latter has been codified here because it was not specifically repealed.

12.04.090 Parking—Permit—Required.

No person shall park any vehicle on said property in those spaces designated for parking without first having obtained a permit therefor from the administrators of the City hospitals, nor shall any person park any vehicle in any place not designated for such purpose by the administrators. (1994 C., § 12.04.090; Ord. No. 56656, § 3, 1974; Ord. No. 56024, § 3, 1971.)

Editor's Note:

Ordinance 56656 appears to supersede Ordinance 56024, but the latter has been codified here because it was not specifically repealed.

12.04.100 Parking—Fine—Towing vehicle.

Any person violating the provisions of Sections 12.04.070—12.04.120 shall be guilty of a misdemeanor and upon conviction thereof shall be fined not less than one dollar nor more than one hundred dollars. Also, the vehicle shall be removed from the grounds of the City hospitals at the owner's expense. The company towing such vehicle shall be entitled to collect from the owner of the vehicle an amount to cover the cost of towing services before releasing vehicle to the owner. (1994 C., § 12.04.100; Ord. No. 56656, § 4, 1974; Ord. No. 56024, § 4, 1971.)

Editor's Note:

Ordinance 56656 appears to supersede Ordinance 56024, but the latter has been codified here because it was not specifically repealed.

12.04.110 Parking—Watchmen—Appointment.

The administrators or their designated assistants of the St. Louis City Hospitals (Max C. Starkloff Memorial and Homer G. Phillips) are authorized to appoint any watchman and any security officer in the hospital division to perform the additional duties of issuing written notices of violation of parking regulations under authority of Sections 12.04.070—12.04.120 only on the grounds of St. Louis City Hospitals (Max C. Starkloff Memorial and Homer G. Phillips) and on property leased by or under the control of the St. Louis City Hospitals (Max C. Starkloff Memorial and Homer G. Phillips). (1994 C., § 12.04.110; Ord. No. 56656, § 5, 1974; Ord. No. 56558, § 1, 1973.)

Editor's Note:

Ordinance 56656 appears to supersede Ordinance 56558, but the latter has been codified here because it was not specifically repealed.

12.04.120 Parking—Watchmen—Violation notices.

All watchmen and all security officers appointed under the authority of Section 12.04.070 shall issue notices of violation of parking regulations under au-

thority of Sections 12.04.070—12.04.120 when any vehicle is found illegally parked contrary to the provisions of Section 12.04.070, 12.04.080 or 12.04.090. Any watchman or security officer so appointed shall notify the driver of the illegally parked vehicle by handing to him or affixing on the vehicle a written notice of the violation of Sections 12.04.070—12.04.120. The notice shall contain instructions permitting the owner of the vehicle or driver to appear in person or mail the sum of ten dollars within seven days to the traffic violation bureau. The instructions shall state that the payment of the ten dollars fine shall be received in lieu of the penalty provided in Section 12.04.100 in full satisfaction of the violation. (1994 C., § 12.04.120; Ord. No. 56656, § 6, 1974; Ord. No. 56558, § 2, 1973.)

Chapter 12.08

DIVISION OF HOSPITALS

Charter:

Art. XIII § 14-C(d) Division of hospitals

City Counselor Ops.: 8769

Sections:

12.08.010 Rules and regulations.
12.08.020 Sanitation.
12.08.030 Care for persons with infectious and contagious diseases.
12.08.040 Temporary emergency hospitals.
12.08.050 Superintendents.
12.08.060 Board, room and laundry for employees.
12.08.070 Duties of convalescent patients.
12.08.080 Admissions and discharges.
12.08.090 Obtaining charitable assistance through misrepresentation.
12.08.100 Representation statement.
12.08.110 Application for charity—Posting.
12.08.120 Contracts.
12.08.130 Payment in advance.
12.08.140 Medical Education and Research Fund.
12.08.150 Emergency treatment.
12.08.160 Inability to pay.
12.08.170 Married women and children.
12.08.180 Indigent sick to receive priority.
12.08.190 Communicable disease patients.
12.08.200 Certification of indigent patients.
12.08.210 Blood transfusion contracts.

12.08.010 Rules and regulations.

The Hospital Commissioner shall make rules and regulations, not inconsistent with the Charter and ordinances of the City, for the government of the hospital division. (1948 C., Ch. 31, § 8; 1960 C., § 435.010; 1994 C., § 12.08.010.)

City Counselor Ops.: 8135

12.08.020 Sanitation.

The hospitals and institutions under the control of the Hospital Commissioner shall be conducted in accordance with the sanitary requirements of the Charter and ordinances of the City. (1948 C., Ch. 31, § 9; 1960 C., § 435.020; 1994 C., § 12.08.020.)

12.08.030 Care for persons with infectious and contagious diseases.

Whenever the Health Commissioner shall so direct, the Hospital Commissioner shall receive and provide care in the proper institution for persons suffering from contagious, infectious or pestilential diseases. Whenever the Mayor has proclaimed the prevalency of any malignant infectious or contagious disease or the probability that the same will become prevalent, the Hospital Commissioner shall cooperate with the Health Commissioner, under the direction and authority of the Health Commissioner, to avoid and suppress or mitigate such disease. (1948 C., Ch. 31, § 10; 1960 C., § 435.030; 1994 C., § 12.08.030.)

12.08.040 Temporary emergency hospitals.

Whenever it may become necessary to establish temporary hospitals or dispensaries in emergency or to employ means of transportation for the removal of the sick, the Hospital Commissioner is authorized to make arrangements as may be necessary. The Hospital Commissioner is authorized to employ extra help for such purposes and to fix the pay of such temporary help at not exceeding three dollars per day. (1948 C., Ch. 31, § 11; 1960 C., § 435.040; 1994 C., § 12.08.040.)

12.08.050 Superintendents.

Each superintendent or head of a section shall report at once in writing to the Hospital Commissioner any neglect of duty or misconduct by any employee, member of the visiting staff of physicians, nurse or attendant.

Each superintendent of an institution and his wife and children may reside in the institution under his charge.

In case of absence of the Hospital Commissioner or his inability to serve, the Hospital Commissioner shall designate one of the superintendents to perform the routine duties of his office, during which time such superintendent shall be known as acting Hospital Commissioner. (1948 C., Ch. 31, § 12; 1960 C., §§ 435.050, 435.060; 1994 C., § 12.08.050.)

12.08.060 Board, room and laundry for employees.

In addition to their salaries, all officers and employees on the payrolls of the institutions of the hospital division shall be entitled to board, room and laundry work, except as hereinafter provided in this title. (1948 C., Ch. 31, § 13; 1994 C., § 12.08.060.)

12.08.070 Duties of convalescent patients.

Convalescent patients shall perform such labor about the hospitals as may be required of them, with the approval of the resident physician. (1948 C., Ch. 31, § 14(part); 1960 C., § 446.010; 1994 C., § 12.08.070.)

12.08.080 Admissions and discharges.

Patients shall be admitted to and discharged from the various institutions under rules and regulations promulgated by the Hospital Commissioner. (1948 C., Ch. 31, § 14(part); 1960 C., § 446.020; 1994 C., § 12.08.080.)

12.08.090 Obtaining charitable assistance through misrepresentation.

No person shall, directly or indirectly through another person, obtain charitable assistance by misrepresentation of their name, occupation, financial or social condition, or residence. (1948 C., Ch. 31, § 15; 1960 C., § 446.030; 1994 C., § 12.08.090.)

12.08.100 Representation statement.

All persons who apply for assistance or treatment at any of the City institutions shall make and sign a representation statement, which shall be substantially as follows; except emergency cases, who shall receive treatment and make a representation statement when their condition will permit without injury to themselves:

Date _____ Representation of patient applying for admission to St. Louis City (Name and Address of Institution) _____

No. ____ Age ____
Name _____ Sex ____
Address
_____
Occupation _____ Nationality _____
Relationship in family
_____
No. in family ____ Rent paid _____
Total income of family ____. This is my _____ application to this Institution, and I have applied to _____ other dispensaries during the past year (or to the following institutions) _____.

I have the following Sickness, Health, Hospitalization, Medical and Surgical Benefits, Plans or Insurance
_____
(insert names of companies or organizations. If not covered, write "NONE") _____. I am able/unable (strike word not applicable) to pay for the services of a physician or surgeon.

The foregoing is in all respects true
_____
Admitted _____
Refused _____
_____
(Signature of applicant)
(Witness) _____ (1948 C., Ch. 31, § 16; 1960 C., § 446.040; 1994 C., § 12.08.100; Ord. No. 47008, § 1, 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.110 Application for charity—Posting.

Any person applying to private individuals or agencies for charitable assistance shall make and sign a statement similar to the one set forth in Section 12.08.100 upon request.

It shall be the duty of those in charge of all public institutions to post a copy of Section 12.08.100 in the reception room of the respective institution. (1948 C., Ch. 31, § 17; 1994 C., § 12.08.110.)

12.08.120 Contracts.

No person shall, except as hereinafter provided, be admitted to any public hospital operated and maintained by the City who is able to pay, in whole or in part, the cost of his maintenance and treatment in such hospital, including charges for services of attending physicians, surgeons and dentists, other than members of the resident staff, until such person shall have signed a contract with the City through the Hospital Commis-

sioner, or his authorized agents, agreeing to pay for his maintenance and treatment, including charges for services of attending physicians, surgeons and dentists, as aforesaid, during such times as he shall remain in the hospital. The amount to be paid, including charges for services of attending physicians, surgeons and dentists, as aforesaid, shall be determined in each case by the Hospital Commissioner, or his authorized agents, but shall in no event exceed such sum as would be payable under the schedule of fees fixed in accordance with the terms of Section 12.08.130. In no case shall an applicant be denied admission to a public hospital operated and maintained by the City who is unable to pay in advance or during his stay in the hospital, but such applicant shall be permitted to defer payment, in whole or in part, until such time as he shall have left the hospital. (1948 C., Ch. 31, § 18; 1960 C., § 446.050; 1994 C., § 12.08.120; Ord. No. 47008, § 2, 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.130 Payment in advance.

No person who is not admitted as a patient to a hospital maintained by the City, and who is able to pay for his expenses, including charges for services of attending physicians, surgeons and dentists, other than members of the resident staff, shall receive medical or surgical treatment at or from any hospital operated by the Division of Hospitals of the City without paying for such expenses. The Hospital Commissioner shall, with the unanimous concurrence of the executive committee or board of directors of the Institute of Medical Education and Research, a nonprofit corporation, composed of the several units of the visiting staffs of the physicians, surgeons and dentists, and certain officials, of the several public hospitals in the City, subject to the approval of the Board of Estimate and Apportionment, fix a schedule of rates to be charged for such treatment, including charges for services of attending physicians, surgeons and dentists, as aforesaid. No person who is urgently in need of receiving immediate treatment, shall be denied such treatment by reason of failure to pay therefor in advance. (1948 C., Ch. 31, § 19(a); 1960 C., § 446-060; 1994 C., § 12.08.130; Ord. No. 47008, § 3(part), 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.140 Medical Education and Research Fund.

All sums collected, at any public hospital operated and maintained by the City for services of attending physicians, surgeons and dentists, other than members of the residential staff, shall be deposited by the Hospital Commissioner, as trustee, in a private fund to be known as the "Medical Education and Research Fund." Under no circumstances shall any moneys so collected ever be paid to such attending physicians, surgeons and dentists. Moneys deposited in the fund shall be disbursed and expended by the Hospital Commissioner only to promote the medical and dental research and educational program and activities, in behalf of such public hospitals, conducted by the Institute of Medical Education and Research, a nonprofit corporation, composed of the several units of the visiting staffs of physicians, surgeons and dentists, and certain officials of the several public hospitals of the City, provided that all disbursements or expenditures must first be approved by the executive committee or board of directors of the institute. The Hospital Commissioner shall give a bond in the sum of ten thousand dollars to the Institute of Medical Education and Research for the faithful performance of his duties, as prescribed in this chapter. Whenever practicable, in the opinion of the executive committee or board of directors of the institute, funds collected for services of physicians, surgeons and dentists, as aforesaid, shall be used in connection with the medical and research activities of the particular unit of the visiting staff which rendered such services. All moneys deposited in the fund may be subject to audit by the Comptroller. (1948 C., Ch. 31, § 19(b); 1960 C., § 446.070; 1994 C., § 12.08.140; Ord. No. 47008, § 3(part), 1954.)

City Counselor Ops.: 7846, 8282, 8298, 9179, 9771

12.08.150 Emergency treatment.

Any person who may be found to be suddenly ill or injured upon the streets or any other place in the City may be admitted to any public hospital operated and maintained by the City without a contract. The Hospital Commissioner, or his authorized agents, shall be authorized to make a contract with any such patient for the payment in whole or in part, for his maintenance and treatment, including charges for services of attending physicians, surgeons and dentists, other than members of the resident staff, in such hospital as soon as such patient shall be physically able to execute a contract. (1948 C., Ch. 31, § 20; 1960 C., § 446.080; 1994 C., § 12.08.150; Ord. No. 47008, § 4, 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.160 Inability to pay.

In every case in which an applicant for admission to a public hospital operated and maintained by the

City, or an inmate thereof, shall declare inability to pay the whole cost of his maintenance and treatment therein, including charges for services of attending physicians, surgeons and dentists, other than members of the resident staff, it shall be the duty of the Hospital Commissioner to cause a full investigation to be made by his authorized agents, for the purpose of determining the ability of the applicant or inmate to pay, and in the event that the investigation shall disclose that he is able to pay, in whole or in part, the actual cost of his maintenance and treatment, including charges for services of attending physicians, surgeons and dentists, as aforesaid, the Hospital Commissioner shall be authorized to charge him with such proportion of the amount for his maintenance and treatment therein, including charges for services of attending physicians, surgeons and dentists, as aforesaid. Unless the patient is able to pay, or until the patient has paid, the full amount of the charges of the hospital for maintenance and treatment therein, other than the charges for services of attending physicians, surgeons and dentists, as aforesaid, no charge shall be made for services of the attending physicians, surgeons and dentists, unless, however, the patient is covered by insurance or some form of medical, dental and surgical benefits which provide for payment of medical, dental and surgical fees, in which event the Hospital Commissioner shall be authorized to charge the patient for the services of the attending physicians, surgeons and dentists, as aforesaid. (1948 C., Ch. 31, § 21; 1960 C., §§ 446.090, 446.100; 1994 C., § 12.08.160; Ord. No. 47008, § 5, 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.170 Married women and children.

In the case of a married woman or a minor, the contract hereinbefore provided for may be made with the husband, father or guardian, as the case may be, and the Hospital Commissioner or his authorized agents shall be authorized to charge, in whole or in part, the actual cost of maintenance and treatment, including charges for services of attending physicians, surgeons and dentists, other than members of the resident staff, to the husband, father or guardian, if his investigation shall disclose that such person is able to pay. Unless the person charged is able to pay, or until such person has paid the full amount of the charges of the hospital for maintenance and treatment therein, other than the charges for services of the attending physicians, surgeons and dentists, as aforesaid, no charge shall be made for services of the attending physicians, surgeons and dentists unless, however, the person charged, or the patient, is covered by insurance or some form of medical, dental and surgical benefits which provide for payment of medical, surgical and dental fees, in which event the Hospital Commissioner shall be authorized to charge such person, or the patient, for the services of the attending physicians, surgeons and dentists, as aforesaid. (1948 C., Ch. 31, § 22; 1960 C., § 446.110; 1994 C., § 12.08.170; Ord. No. 47008, § 6, 1954.)

City Counselor Ops.: 7846, 8282, 8298

12.08.180 Indigent sick to receive priority.

No person shall be admitted as a pay patient to a public hospital operated and maintained by the City whenever his admission would result in the exclusion of indigent sick residents of the City who have applied for admission. Under all circumstances the indigent sick shall be entitled to priority. (1948 C., Ch. 31, § 23; 1960 C., § 446.120; 1994 C., § 12.08.180.)

City Counselor Ops.: 8336

12.08.190 Communicable disease patients.

The provisions of this chapter shall not apply to patients in institutions maintained for the care and treatment of communicable disease, when, in the judgment of the Health Commissioner, or Hospital Commissioner, it is necessary to admit a patient suffering from a communicable disease for the protection of the public health. (1948 C., Ch. 31, § 24; 1960 C., § 446.130; 1994 C., § 12.08.190.)

12.08.200 Certification of indigent patients.

In every case where the laws of the state provide for the admission of residents of the City to any of the eleemosynary institutions of the state, as poor persons, at the expense of the City, the Comptroller, when convinced, upon proper investigation, that any resident of the City seeking admission to an eleemosynary institution is a proper subject for admission and has not means sufficient to pay the cost of his maintenance at such institution, shall be, and he is hereby authorized to issue such certificate as may be provided for by law as a condition to such admission, and by the issuance of such certificate to obligate the City to the payment of the sum legally fixed for the support of poor patients at such institution. (1948 C., Ch. 31, § 25; 1960 C., § 446.140; 1994 C., § 12.08.200.)

12.08.210 Blood transfusion contracts.

The Hospital Commissioner is authorized to make contracts with individuals who are willing to submit to transfusions of blood, providing for the payment to any such individual of the sum of twenty-five dollars for each transfusion whenever, in his opinion, the transfusion is necessary to save the life of any patient at the City institutions. (1948 C., Ch. 31, § 26; 1960 C., § 446.150; 1994 C., § 12.08.210.)

Chapter 12.12

HOSPITAL STAFFS

City Counselor Ops.: 8769

Sections:

12.12.010	**Appointment—Qualifications—Remuneration.**
12.12.020	**Term.**
12.12.030	**Powers—Duties.**
12.12.040	**Patients not to be subject of lectures against their will.**
12.12.050	**Resident staffs.**
12.12.060	**Students permitted to attend lectures.**
12.12.070	**Clinics—Lectures.**
12.12.080	**Patients' records.**
12.12.090	**Psychopathic department.**
12.12.100	**Sending physician to home of person suspected insane.**
12.12.110	**Written report for all psychopathic patients.**

12.12.010 Appointment—Qualifications—Remuneration.

There shall be a visiting staff of physicians and dentists for the City Hospital and visiting staffs for such other institutions of the hospital division as the Hospital Commissioner may find advisable. These visiting staffs shall be appointed by the Hospital Commissioner not earlier than one week after inviting by published advertisement all eligible persons to become candidates. Legally qualified physicians or dentists residing in the City or county who have been in private practice not less than five years or in resident hospital practice not less than three years after graduation shall be eligible for appointment. The visiting staff shall be composed as far as possible and where practicable of those who are actively engaged in teaching some branch of medicine or dentistry. Members of the visiting staff shall serve without salary. They shall not, under any circumstances, accept fees or remuneration for services rendered any patient in any of the institutions, with the exception of the isolation hospital, and then only from pay patients who may have employed them before entering such institution. The visiting staff shall be advisory to the Hospital Commissioner in all matters pertaining to the fullest accomplishment of the humane purposes of the institutions. (1948 C., Ch. 31, § 27; 1960 C., § 436.010; 1994 C., § 12.12.010.)

12.12.020 Term.

The members of the visiting staff shall serve for a term of two years and until their successors have been appointed. Appointments to vacancies from whatever cause shall be for the unexpired term. (1948 C., Ch. 31, § 28(part); 1960 C., § 436.020(part); 1994 C., § 12.12.020.)

12.12.030 Powers—Duties.

The members of the visiting staff shall have full authority and, under the rules and regulations of the Hospital Commissioner, be responsible for the treatment of patients in the City Hospital and other institutions, excepting that the visiting staff at the sanitarium shall be advisory only to the superintendent and resident physician and shall not be superior to him in authority therein. The visiting staff shall appoint an examining committee, no two members of whom shall be connected with the same medical college, for the purpose of conducting examinations for junior interns and other members of the resident staffs, on request of the Hospital Commissioner. The visiting staffs of the various institutions, working under rules and regulations of the Hospital Commissioner, shall treat directly or supervise and direct the treatment of all patients in any institution having a visiting staff, except in the sanitarium and in cases of emergency, as emergencies may be defined by the visiting staff and approved by the Hospital Commissioner. The members of the resident staffs of physicians, except at the sanitariums, shall be directly responsible to the visiting staffs and shall work under their direction. No treatment shall be given and no surgical operation shall be performed upon any patient except in accordance with rules and regulations drawn by the visiting staff and approved by the Hospital Commissioner. (1948 C., Ch. 31, § 28(part); 1960 C., § 436.020(part); 1994 C., § 12.12.030.)

12.12.040 Patients not to be subject of lectures against their will.

No patient shall be made the subject of a clinic, lecture or demonstration against his will, or who would be injured thereby. (1948 C., Ch. 31, § 29; 1960 C., § 436.030; 1994 C., § 12.12.040.)

12.12.050 Resident staffs.

The resident staffs of the various institutions shall comprise the resident physicians, senior interns and junior interns, except at the sanitarium and Robert Koch Hospital. They shall work under the direction of and be responsible to the visiting staff for the care of all patients, under rules approved by the Hospital Commissioner. No member of any resident staff shall be permitted to accept private practice or professional fees during his period of appointment. Resident physicians or senior interns shall be either physicians licensed to practice medicine and surgery in Missouri, or physicians who are eligible for, and who will obtain, a license to practice medicine and surgery in Missouri, by examination or reciprocity, within ninety days after completing an accredited junior internship. (1948 C., Ch. 31, § 30; 1960 C., § 436.040; 1994 C., § 12.12.050.)

12.12.060 Students permitted to attend lectures.

Undergraduate students of medicine and dentistry in attendance at any of the colleges in the City in good standing with the State Board of Health may be admitted to the institutions at hours and days of the week as may be designated by the Hospital Commissioner. Such students shall have the privilege of attendance without cost at lectures and clinics conducted by the visiting staff. (1948 C., Ch. 31, § 31(part); 1960 C., § 436.050; 1994 C., § 12.12.060.)

12.12.070 Clinics—Lectures.

No person not a member of the visiting staff shall be permitted to conduct clinics or lectures in the institution except by the consent of the visiting staff and with the approval of the Hospital Commissioner.

All clinics, lectures and instructions shall be conducted in accordance with the rules of the Hospital Commissioner and laws and ordinances of the City. (1948 C., Ch. 31, § 31(part); 1960 C., § 436.060; 1994 C., § 12.12.070.)

12.12.080 Patients' records.

The superintendent of the City Hospital shall maintain a modem and complete individual record of patients, concerning the history, condition on admission, all examinations made, all treatments and operations, condition from time to time and at time of discharge, and reasons for discharge. He shall keep in a safe place the record of each patient for at least ten years after discharge. (1948 C., Ch. 31, § 32; 1960 C., § 435.090; 1994 C., § 12.12.080.)

12.12.090 Psychopathic department.

There shall be a suitable psychopathic department maintained at the City Hospital for the detention and observation of persons of suspected unsound mind. The Hospital Commissioner shall admit persons to the psychopathic ward on request of responsible relatives, friends or the Chief of Police. (1948 C., Ch. 31, § 33; 1960 C., § 437.010; 1994 C., § 12.12.090.)

City Counselor Ops.: 7828

12.12.100 Sending physician to home of person suspected insane.

The Hospital Commissioner shall be authorized to send a physician from the hospital division to the home of anyone suspected of being insane by his relatives or friends or the police, to assist in determining what disposition will be advisable. (1948 C., Ch. 31, § 34; 1960 C., § 437.020; 1994 C., § 12.12.100.)

City Counselor Ops.: 7828

12.12.110 Written report for all psychopathic patients.

The resident alienist, visiting alienists and all physicians connected with the psychopathic department shall carefully observe all patients admitted and shall make a written report, without undue delay, to the Hospital Commissioner regarding each person found to be of unsound mind and whose admission to the sanitarium is recommended. (1948 C., Ch. 31, § 35; 1960 C., § 437.030; 1994 C., § 12.12.110.)

City Counselor Ops.: 7828

Chapter 12.16

ROBERT KOCH TUBERCULOSIS HOSPITAL

City Counselor Ops.: 8769

Sections:

12.16.010 Established.

12.16.020 Policies, rules and regulations.

12.16.010 Established.

The grounds purchased by the City from Augustus Langkopt, by deed dated July 7, 1854, shall be known

as Robert Koch Hospital. The hospital shall be a hospital for long-term hospitalization treatment and care of patients, including, but not limited to, the care and treatment of all forms of tuberculosis, and all other diseases and infirmities of the body and mind. (1960 C., § 442.010; 1994 C., § 12.16.010; Ord. No. 54489, § 1(part), 1967.)

12.16.020 Policies, rules and regulations.

All patients shall be admitted, treated and cared for under and pursuant to the policies, rules and regulations promulgated by the Hospital Commissioner as approved by the Director of Health and Hospitals. (1960 C., § 442.020; 1994 C., § 12.16.020; Ord. No. 54489, § 1(part), 1967.)

Chapter 12.20

HARRY S. TRUMAN RESTORATIVE CENTER

City Counselor Ops.: 8769

Sections:

12.20.010 Designated.

12.20.020 Additional properties—St. Louis Nursing Home.

12.20.030 Additional properties—Isolation Hospital.

12.20.040 Indigent patients.

12.20.050 Minors.

12.20.060 Admission rules.

12.20.070 Records.

12.20.010 Designated.

The institution located on the property situated at or near 5600 Arsenal Street acquired by the City by the ratification of the Scheme and Charter of the City and subsequently established and formerly known as the St. Louis Chronic Hospital, shall hereafter be known as, named and designated as the "Harry S. Truman Restorative Center." (1994 C., § 12.20.010; Ord. No. 56904, § 1, 1975; Ord. No. 56796, § 1, 1974; Ord. No. 46819, § 1, 1953.)

Editor's Note:

Ordinance 56904 apparently intended to repeal Ordinance 56796, but the latter has been codified here because it was not specifically repealed.

12.20.020 Additional properties—St. Louis Nursing Home.

The institution located on the property situated at or near 5700 Arsenal Street, formerly known as the St. Louis Nursing Home, is to be considered a part of the "Harry S. Truman Restorative Center," the same as the institution formerly known as the St. Louis Chronic Hospital. (1994 C., § 12.20.020; Ord. No. 56904, § 2, 1975.)

12.20.030 Additional properties—Isolation Hospital.

The building and premises known as the Isolation Hospital shall hereafter be known as the "Harry S. Truman Restorative Center," be operated in conjunction with and as a part of the "Harry S. Truman Restorative Center," and all ordinances relating to the "Harry S. Truman Restorative Center" shall apply to and include the premises formerly known as the Isolation Hospital. (1948 C., Ch. 31, § 43; 1960 C., § 443.040; 1994 C., § 12.20.030; Ord. No. 46819, § 3(43), 1953.)

Editor's Note:

All references to the St. Louis Chronic Hospital have been editorially changed to conform with Ord. 56904.

12.20.040 Indigent patients.

The Harry S. Truman Restorative Center shall be maintained for the care of indigent and decrepit persons who are incapacitated for supporting themselves. It shall be the duty of the Hospital Commissioner to establish a system whereby persons admitted to Harry S. Truman Restorative Center shall earn the expense of their keep to the extent of their ability, such ability to be decided by the resident physician of Harry S. Truman Restorative Center. (1948 C., Ch. 31, § 40; 1960 C., § 443.010; 1994 C., § 12.20.040; Ord. No. 46819, § 3(40), 1953.)

RSMo:

RSMo 205.330 (2016) Board to determine charity patients

12.20.050 Minors.

No minor under the age of seven shall be maintained at the Harry S. Truman Restorative Center. No minor between the ages of seven and seventeen in good health shall be maintained at the Harry S. Truman Restorative Center. The question of the health of any such person shall be determined by the Hospital Commissioner. (1948 C., Ch. 31, § 41; 1960 C., § 443.020; 1994 C., § 12.20.050; Ord. No. 47042, § 1, 1954; Ord. No. 46819, § 3(41), 1953.)

12.20.060 Admission rules.

All persons admitted to the Harry S. Truman Restorative Center shall have been residents of the City for at least one year prior to the date of application for

admission, except when the patient cannot be transferred and the City must care for the patient. The Hospital Commissioner shall prescribe rules and regulations for the investigation and admission of all persons to the Harry S. Truman Restorative Center and no person shall be admitted without a written order from the Hospital Commissioner. (1948 C., Ch. 31, § 42; 1960 C., § 443.030; 1994 C., § 12.20.060; Ord. No. 46819, § 3(42), 1953.)

12.20.070 Records.

The superintendent of the Harry S. Truman Restorative Center shall maintain a record of all persons admitted to Harry S. Truman Restorative Center concerning their condition on admission, all medical and surgical treatment required and given, injuries sustained or diseases contracted, and the results of same; also condition on discharge and reasons thereof. (1948 C., Ch. 31, § 44; 1960 C., § 443.050; 1994 C., § 12.20.070; Ord. No. 46819, § 3(44), 1953.)

Chapter 12.24

PSYCHIATRIC CLINIC

City Counselor Ops.: 8769

Sections:

12.24.010 Established—Duties.
12.24.020 Advisory board—Members—Term.
12.24.030 Advisory board—Reports.
12.24.040 Advisory board—Absence.

12.24.010 Established—Duties.

It is established and included within the Department of Health and Hospitals, a psychiatric clinic which shall conduct research and give publicity concerning the causes of poverty, delinquency, crime and disease, and concerning other problems relating to the public health, morals and welfare, and shall, through appropriate means, promote the education of the City with regard thereto. In the conduct of such research, giving of such publicity and promotion of such education, the psychiatric clinic shall act in an advisory capacity, and furnish free clinical service to the juvenile court concerning the mental, physical and social condition of the children brought before that court. It shall furnish free clinical service to the general public, to other courts, to the Board of Education and to all public and semi-public institutions, schools, whether public or private, orphanages, social service agencies and organizations. The clinic shall be available for making investigations or surveys to the court and may also make investigations and recommendations regarding patients, inmates or prisoners in the workhouse, jail or other public institutions. (1948 C., Ch. 31, § 45; 1960 C., § 422.010; 1994 C., § 12.24.010; Ord. No. 49560, § 1(45), 1959.)

12.24.020 Advisory board—Members—Term.

The Director of Health and Hospitals may appoint a psychiatric clinic advisory board. The advisory board shall consist of seven members to be appointed by the Director of Health and Hospitals. At least one member shall be a physician interested in the field of psychiatry. The director of the clinic and other such employees as may be deemed advisable may be called to attend the meetings of the advisory board, but such employees shall be ineligible to membership on the advisory board. The members of the board shall organize and elect a chairman, vice-chairman and secretary annually, and such other officers as may be necessary. They shall have power to adopt rules and regulations for the government of their board. Each member of the advisory board shall hold office for the term of three years and until his successor is appointed. Members of the first board shall be appointed for terms of from one to three years so that the term of two shall expire at the end of the first year, three at the end of the second year, and two at the end of the third year. The succeeding appointment shall be made for terms of three years. Each member of the advisory board shall serve without compensation. Any vacancy from whatever cause shall within thirty days after such vacancy occurs be filled by the Director of Health and Hospitals for the unexpired term. (1948 C., Ch. 31, § 46(part); 1960 C., § 422.020; 1994 C., § 12.24.020; Ord. No. 49560, § 1(46 part), 1959.)

12.24.030 Advisory board—Reports.

The advisory board shall receive each month, from the director of the psychiatric clinic, a report of the work of the clinic, for the preceding month, shall advise with the officers of the clinic and with the Director of Health and Hospitals, with respect to its work, and shall annually deliver to the Director of Health and Hospitals a written or printed report of the activities of the Board and clinic. (1948 C., Ch. 31, § 46(part); 1960 C., § 422.030; 1994 C., § 12.24.030; Ord. No. 49560, § 1(46 part), 1959.)

12.24.040 Advisory board—Absence.

Absence from three consecutive regular meetings without giving excuse satisfactory to the Board and so entered upon the records, shall vacate the office of any member of the Board. (1948 C., Ch. 31, § 46(part); 1960 C., § 422.040; 1994 C., § 12.24.040; Ord. No. 49560, § 1(46 part), 1959.)

Chapter 12.28

SNODGRASS LABORATORY

City Counselor Ops.: 8769

Sections:

12.28.010 City bacteriologist.

12.28.010 City bacteriologist.

The City Bacteriologist shall carry on his work in the Snodgrass laboratory and shall perform the bacteriological and pathological work for the City, under rules and regulations promulgated by the Hospital Commissioner. The bacteriologist and assistants shall not perform any private work in any of the City laboratories. (1948 C., Ch. 31, § 47; 1960 C., § 445.010; 1994 C., § 12.28.010.)

Chapter 12.32

DISPENSARIES

Sections:

12.32.010 Purpose.
12.32.020 Free medicines for indigent persons.
12.32.030 Patient records.
12.32.040 Medical attendance at City Jail.

City Counselor Ops.: 8679

12.32.010 Purpose.

The dispensaries shall be maintained for the treatment of indigent persons who are not sick enough to require hospital treatment; for the treatment of other persons only in case of emergency and for examination and admission of patients to the various City institutions, under rules and regulations promulgated by the Hospital Commissioner. (1948 C., Ch. 31, § 48; 1960 C., § 440.010; 1994 C., § 12.32.010.)

12.32.020 Free medicines for indigent persons.

For the relief of sick and indigent persons, medicines shall be furnished out of funds appropriated for the City dispensary, under rules and regulations of the Hospital Commissioner. (1948 C., Ch. 31, § 49; 1960 C., § 440.020; 1994 C., § 12.32.020.)

12.32.030 Patient records.

The Chief Dispensary Physician shall keep an individual history and record of all persons treated at any City dispensary and at the City Jail. The record shall show the condition of the patient, treatments given, and other information required by the Hospital Commissioner. All records of dispensary patients shall be kept in a safe place for at least five years. (1948 C., Ch. 31, § 50; 1960 C., § 440.030; 1994 C., § 12.32.030.)

City Counselor Ops.: 7973, 9392

12.32.040 Medical attendance at City Jail.

The Hospital Commissioner shall provide medical service for sick prisoners in the City Jail by assigning an assistant dispensary physician under the direction of the Chief Dispensary Physician, to make regular visits and inspections to ensure proper attention for all sick prisoners. (1948 C., Ch. 31, § 51; 1960 C., § 440.040; 1994 C., § 12.32.040.)

Chapter 12.36

PRIVATE HOSPITALS

City Counselor Ops.: 8769

Sections:

12.36.010 Permit—Required.
12.36.020 Permit—Application.
12.36.030 Permit—Building inspection.
12.36.040 Permit—Issuance.
12.36.050 Permit—Nontransferable.
12.36.060 Change in staff.
12.36.070 Resident physician required.
12.36.080 Rules and regulations.
12.36.090 Grounds for revocation of permit.
12.36.100 Inspection of premises.

12.36.010 Permit—Required.

No person shall establish, maintain, operate or conduct a hospital, sanitarium, lying-in establishment, lock hospital, home, retreat or other place or institution intended for the boarding, lodging, nursing or care of the sick or such persons as are suffering from or afflicted with bodily or mental infirmities or ailments of any kind whatsoever, or pregnant women, or any institution for the care of orphan, vagrant or destitute children, a foundling home, a day nursery, a boarding

home for children, a clinic or a dispensary, within the City, without first having obtained a permit to do so from the Board of Public Service. (1948 C., Ch. 31, § 52; 1960 C., § 455.010; 1994 C., § 12.36.010.)

12.36.020 Permit—Application.

Any person who may desire to establish, maintain, operate or conduct any of the establishments set forth in Section 12.36.010 shall first file a written application addressed to the Board of Public Service requesting the Board to grant the applicant therein named permission and authority to establish, maintain, operate and conduct the kind of institution therein described, which application shall contain the following information:

A. The names of all persons who are to control, operate or manage such institution, including the matron, superintendent, resident physician or surgeon, medical staff, including all physicians or surgeons who are in any manner connected or identified with such institution and the names of any midwives attached to or connected with the institution, and if a corporation, then also the names of the officers and board of directors thereof;

B. The location of the proposed institution and the name under which the institution will be operated or conducted;

C. The size and dimensions of the building and the number of rooms in such building;

D. The maximum number of patients that the institution can properly accommodate;

E. Whether any business is or will be conducted or operated in the same building or on the same premises, and, if so, what other business;

F. A written statement from each member of the medical staff, the resident physician or surgeon, superintendent and matron, certifying that he will serve on the staff of the institution as stated by the applicant for the permit. (1948 C., Ch. 31, § 53; 1960 C., § 455.020; 1994 C., § 12.36.020.)

12.36.030 Permit—Building inspection.

Upon the filing of the application required by Section 12.36.020 the Health Commissioner shall cause the building and premises to be thoroughly examined and inspected. No building shall be used for any of the purposes herein specified which does not, among other things, conform to the following requirements:

A. Every room, including water closet, compartments and bathrooms, shall have at least one window opening directly upon the street or upon an areaway, a yard or court;

B. The total area of the windows in such room shall be at least one-eighth of the superficial area of the room, and one-half of the sash shall be made to open full width.

If, as a result of such examination, it shall be found that the building and premises conform to the requirements of this section, and the Health Commissioner shall be of the opinion that the building and premises are in all other respects in a sanitary condition, that the statements made in the application for a permit are true and that the applicant is a person of good character, he shall return such application to the Board of Public Service for its action, with his report and endorsement thereon. (1948 C., Ch. 31, § 54; 1960 C., §§ 455.030—455.050; 1994 C., § 12.36.030.)

12.36.040 Permit—Issuance.

In all cases in which the Board of Public Service shall act favorably upon any application, it shall issue a permit authorizing the person named therein to establish, maintain or conduct an institution of the kind described in the application for such permit, under the name and at the place designated in such application for a period of one year from the date thereof, which permit shall be subject to revocation by the Board of Public Service at any time for any of the causes herein specified. (1948 C., Ch. 31, § 55(part); 1960 C., § 455.060; 1994 C., § 12.36.040.)

12.36.050 Permit—Nontransferable.

The permit shall not be transferred by the person to whom it is issued without the consent and approval in writing of the Board of Public Service, and any transfer or attempted transfer thereof, or any change in the name of such institution, or change in the management or managers of such institution, or the location of such institution without the approval of the Board of Public Service in writing, shall render the permit absolutely void and cause the immediate forfeiture of the permit and of all rights thereunder to establish, maintain, operate or conduct any such institution within the limits of the City. (1948 C., Ch. 31, § 55(part); 1960 C., § 455.070; 1994 C., § 12.36.050.)

12.36.060 Change in staff.

Every person who secures a permit from the Board of Public Service to establish, maintain, operate or conduct any institution described herein shall immediately notify the Health Commissioner of any change in the medical staff, resident physicians or surgeons, su-

perintendent, midwives or matrons attached to or connected with such institution. (1948 C., Ch. 31, § 55(part); 1960 C., § 455.080; 1994 C., § 12.36.060.)

12.36.070 Resident physician required.

All hospitals, sanitariums, lying-in establishments, lock hospitals, homes, retreats or other places of like or similar institutions, intended for the boarding, lodging, nursing or care of the sick, or other persons suffering from or afflicted with bodily or mental infirmities or ailments of any kind whatsoever, or pregnant women, within the City, shall keep a physician licensed to practice medicine and surgery in the state, and who is actively engaged in the practice of medicine and surgery resident therein. (1948 C., Ch. 31, § 56; 1960 C., § 455.090; 1994 C., § 12.36.070.)

12.36.080 Rules and regulations.

The Division of Health is authorized to make rules and regulations in respect to the management and conduct of institutions of the kind hereinabove described and for the care and treatment of the patients or inmates thereof as the Division of Health may deem wise. (1948 C., Ch. 31, § 57; 1960 C., § 455.100; 1994 C., § 12.36.080.)

12.36.090 Grounds for revocation of permit.

For any violation of any of the provisions of this chapter or for any violation of any of the rules and regulations which may be prescribed from time to time by the Division of Health for the conduct or management of any of the institutions herein named the Board of Public Service shall have the right to revoke any permit theretofore granted by it. The Board shall issue a notice to the person named in the permit, informing him of the time and place of the Board's action thereon and the grounds therefor. The notice shall be served at least ten days prior to the hearing thereon, either by delivering a copy thereof to the person therein named or by leaving a copy of such notice at the institution named in the permit and which the Board intends to investigate. (1948 C., Ch. 31, § 58; 1960 C., §§ 455.110, 455.120; 1994 C., § 12.36.090.)

RSMo:

RSMo 201.199 et seq. (2016) Licensing of certain child care homes

12.36.100 Inspection of premises.

The Health Commissioner is authorized in person, or by duly authorized representatives, who are officers, assistants or employees, in the Division of Health and licensed physicians to enter into and examine any house, building or premises that is being maintained, operated or conducted as any of the establishments set forth in this chapter.

Each and every person in charge, control, management or possession of any such house, building, or premises, or any part thereof, who shall be requested by the Health Commissioner, or any of his representatives, shall permit the Health Commissioner or his representatives to enter and to examine the house, building or premises and all parts thereof and shall open to the Health Commissioner, or to his representative, such doors in his charge, control, management or possession as may be necessary or convenient for the thorough examination of such home, building or premises, or parts thereof. (1948 C., Ch. 31, § 59; 1960 C., § 455.130; 1994 C., § 12.36.100.)

Chapter 12.40

SECTION OF SOCIAL SERVICE AND INVESTIGATION

RSMo:

RSMo Ch. 335 (2016) Nurses

City Counselor Ops.: 8769

Sections:

12.40.010 Established—Personnel.
12.40.020 Purposes—Duties.
12.40.030 Supervisor of Social Service.

12.40.010 Established—Personnel.

There is created a section of social service and investigation under the Hospital Division of the Department of Public Welfare. This section shall consist of a supervisor of social service and investigation, ten social service workers and investigators, and one stenographer. The number of social service workers and investigators may be augmented by and with the consent of the Board of Estimate and Apportionment. (1948 C., Ch. 31, § 61; 1960 C., § 438.010; 1994 C., § 12.40.010.)

For social services and welfare generally, see Ch. 3.36.

12.40.020 Purposes—Duties.

This section shall:

A. Aid the administration of the various institutions under the hospital division by giving recommendations concerning the financial ability and residential eligibility of patients applying for treatment;

B. Help to make medical treatment more effective by adjusting the relations between a patient and his environment, thereby reducing the number of reentries;

C. Gather and report to the physicians of such institutions such pertinent facts regarding the patients as will aid in diagnosis and treatment;

D. Assist the institutions by conducting a follow-up service to ensure the carrying out of medical instructions;

E. Convey to interested social agencies within the community the physician's recommendations concerning patients;

F. Promote health education and health conservation in the community through appropriate means;

G. Conduct such medical social research as will contribute further knowledge concerning the causes and prevention of disease and the promotion of health;

H. Make other recommendations and investigations and take other action calculated to contribute to the promotion of health and prevention of disease and poverty in the community. (1948 C., Ch. 31, § 62; 1960 C., § 438.020; 1994 C., § 12.40.020.)

12.40.030 Supervisor of Social Service.

The Supervisor of Social Service and Investigation shall have, under the direction of the Hospital Commissioner, control of the social service and investigation work of all the hospitals and other institutions of the hospital division. (1948 C., Ch. 31, § 63; 1960 C., § 438.030; 1994 C., § 12.40.030.)

Chapter 12.44

REGISTRATION OF PHYSICIANS, SURGEONS AND MIDWIVES

City Counselor Ops.: 8769

Sections:

12.44.010 Information required for registration of physicians and surgeons.

12.44.020 When registration may be refused.

12.44.030 Druggists.

12.44.040 Midwives.

12.44.010 Information required for registration of physicians and surgeons.

Every person now practicing medicine or surgery in the City, or who shall hereafter engage in such practice, shall, before continuing or entering upon such practice, exhibit his certificate obtained from the State Board of Health, under the provisions of the laws of Missouri, to the Health Commissioner, and file a copy of the same with the Health Commissioner, who shall thereupon enter the name of such person, the date of the filing of such copy, the date of such certificate, and the name and location of the institution at which the person was graduated, if such person should be a graduate, in a book to be kept by the Health Commissioner for that purpose, and shall require such person to subscribe his name in such book. (1948 C., Ch. 31, § 82; 1960 C., § 457.010; 1994 C., § 12.44.010.)

RSMo:

RSMo 334.010 et seq. (2016) Physicians and surgeons, generally

City Counselor Ops.: 8706

12.44.020 When registration may be refused.

Whenever the Health Commissioner has reason to believe that the certificate exhibited is not genuine or has not been legally issued to the person presenting the same, he shall refuse to allow the person presenting the certificate to be registered and shall set a day of hearing before the Health Commissioner, and after such hearing shall decide whether the person shall be allowed to register. (1948 C., Ch. 31, § 83; 1960 C., § 457.020; 1994 C., § 12.44.020.)

12.44.030 Druggists.

Nothing in this chapter shall be construed as to permit any druggist to engage in the practice of medicine or surgery without first having filed with the Health Commissioner a diploma, or certified copy thereof, in accordance with the provisions of Sections 12.44.010—12.44.020 of this chapter. (1948 C., Ch. 31, § 88; 1994 C., § 12.44.030.)

RSMo:

RSMo 338.010 et seq. (2016) Pharmacists, generally

12.44.040 Midwives.

It shall not be lawful for any person to practice midwifery unless such person shall first register her name and place of abode in a book in the office of the Health Commissioner, kept for that purpose. No person shall be allowed to register as midwife who shall not first file a diploma from some school of midwifery in good standing, or a certificate signed by at least two registered physicians, which certificate shall state that the party named in the certificate is in their opinion qualified to practice midwifery. Any person who shall practice or attempt to practice midwifery without first

having complied with the provisions of this chapter shall be deemed guilty of a misdemeanor. (1948 C., Ch. 31, § 87; 1960 C., § 457.030; 1994 C., § 12.44.040.)

RSMo:

RSMo 334.260 (2016) Midwives licensed

RSMo 334.190 (2016) Practice of midwifery limited

Chapter 12.48

PAYMENT BY PATIENTS AT CITY HOSPITALS

City Counselor Ops.: 8769

Sections:

12.48.010 Collection of charges.

12.48.020 Personnel—Bond.

12.48.030 Sick claim blanks.

12.48.010 Collection of charges.

The Hospital Commissioner is authorized to collect all charges for maintaining and treating patients and inmates in hospitals and institutions operated under the supervision of the hospital division. All money so collected shall be deposited daily with the Treasurer, and a duplicate deposit slip filed with the Comptroller. A complete report of all collections made during the preceding month shall be filed with the Comptroller on or before the fifth day of each month. (1948 C., Ch. 31, § 66; 1960 C., § 446.160; 1994 C., § 12.48.010.)

RSMo:

RSMo 430.230—430.250 (2016) Hospital liens

12.48.020 Personnel—Bond.

The Hospital Commissioner is authorized, with the approval of the Director of Personnel and the Board of Estimate and Apportionment, to appoint in accordance with the Charter and ordinances of the City employees necessary to collect such charges and to keep the proper records thereof.

Each of such employees whose duties include the handling of funds of the City shall give a bond in the sum of five thousand dollars.

The Director of Health and Hospitals is hereby authorized, with the approval of the Board of Estimate and Apportionment to enter into contracts with private persons, corporations or other legal entities, for the collection of bills and other changes incurred by parties using the services of the Department of Health and Hospitals under terms and conditions as determined by said Board of Estimate and Apportionment. (1948 C., Ch. 31, § 67; 1960 C., § 446.170; 1994 C., § 12.48.020; Ord. No. 58727, § 1, 1982.)

12.48.030 Sick claim blanks.

No patient in the City hospitals nor resident in the City infirmary shall be charged any fee by such institutions nor any of their officials or employees for filling out sick claim blanks. (1948 C., Ch. 31, § 68; 1960 C., § 446.180; 1994 C., § 12.48.030.)

City Counselor Ops.: 8074

Chapter 12.52

NURSES

Sections:

12.52.010 Superintendent of Nurses.

12.52.020 Assistant superintendents of nurses and head operating room nurse.

12.52.030 Graduate nurses.

12.52.040 Female day and night attendants.

12.52.050 Pupil nurses.

12.52.060 Dietitian.

12.52.070 Social service worker.

12.52.080 Organization of nursing department of City infirmary.

12.52.090 Post-graduate nurses.

12.52.100 School of nursing.

12.52.110 Nurses' advisory board—Established.

12.52.120 Nurses' advisory board—Appointment—Term.

12.52.130 Nurses' advisory board—Qualifications.

12.52.140 Nurses' advisory board—Officers—Quorum.

12.52.150 Nurses' advisory board—Recommendations to Hospital Commissioner.

12.52.160 Nurses' advisory board—Reports.

12.52.170 Nurses' advisory board—Consultation.

12.52.180 Nurses' advisory board—Graduation duties.

12.52.190 Nurses' advisory board—Appeals.

12.52.200 Tuition loans—Established.

12.52.210 Tuition loans—Written agreement.

12.52.220 Tuition loans—Security or endorsement.
12.52.230 Tuition loans—Former students—Reimbursements.
12.52.240 Tuition loans—Former students—Written agreements.
12.52.250 Tuition loans—Interest.
12.52.260 Tuition loans—Extension.
12.52.270 Tuition loans—Death or disability.

12.52.010 Superintendent of Nurses.

The Superintendent of Nurses at the City Hospital shall be a graduate of a training school complying with the requirements of the state board for examination and registration of nurses, shall be a registered nurse and shall have had at least three years' experience as a teacher in a recognized training school for nurses, and shall be appointed in accordance with the civil service requirements of the Charter.

The Superintendent of Nurses shall work under the direction of the nurses' board in all matters pertaining to the training and graduation of nurses. The nurses' board shall at all times provide rules consistent with furnishing the best possible nursing for the patients of the institution. She shall work under the direction of the superintendent of the hospital in the general executive work of the institution. (1948 C., Ch. 31, § 70; 1994 C., § 12.52.010.)

Editor's Note:

Although 1948 C. Ch. 31 §§ 70—78 were not codified in the 1960 C., they have been codified here because there has been no specific repeal of the sections.

12.52.020 Assistant superintendents of nurses and head operating room nurse.

The assistant superintendents of nurses and the head operating room nurse shall have the same qualifications as the Superintendent of Nurses, except that they need have but one year of teaching experience in a recognized training school for nurses.

The assistant superintendents of nurses and the head operating room nurse shall be appointed in accordance with the civil service requirements of the Charter.

The assistant superintendents of nurses and the head operating room nurse shall work under the direction of the Superintendent of Nurses. (1948 C., Ch. 31, § 71; 1994 C., § 12.52.020.)

12.52.030 Graduate nurses.

Graduate nurses shall have completed a course in a training school for nurses complying with the requirements of the state board for the examination and registration of nurses.

Such nurses shall be appointed in accordance with the civil service requirements of the Charter.

Such nurses shall work under the direction of the Superintendent of Nurses. (1948 C., Ch. 31, § 72; 1994 C., § 12.52.030.)

12.52.040 Female day and night attendants.

Female day and night attendants shall be over twenty-one years of age, of good moral character, able-bodied and able to read and write English. They shall be used only as attendants where the nurses' board does not desire to place nurses from the training school. The female day and night attendants shall work under the direction of the Superintendent of Nurses. (1948 C., Ch. 31, § 73; 1994 C., § 12.52.040.)

12.52.050 Pupil nurses.

Pupil nurses shall work under the direction of the Superintendent of Nurses. (1948 C., Ch. 31, § 74; 1994 C., § 12.52.050.)

12.52.060 Dietitian.

The dietitian shall be a graduate of a school of dietetics requiring at least two years of study.

The dietitian shall give instruction in dietetics to the pupil nurses at the hospital required by the rules and regulations of the nurses' board. The dietitian shall prepare special diets and supervise the general diets of the hospital, as directed by the Superintendent. The entire time of the dietitian shall be devoted to work and teaching for the City. (1948 C., Ch. 31, § 75; 1994 C., § 12.52.060.)

12.52.070 Social service worker.

The social service worker shall be either a graduate of a recognized school of social economy or shall have had at least three years practical field work as a social service worker in a large institution.

The social service worker shall give such instruction as may be required by the nurses' board to any nurse under its charge, and shall perform such other duties as may be required by the superintendent of the hospital. The entire time of the social service worker shall be devoted to work and teaching for the City. (1948 C., Ch. 31, § 76; 1994 C., § 12.52.070.)

12.52.080 Organization of nursing department of City infirmary.

The Hospital Commissioner is authorized to appoint for the infirmary hospital, one graduate nurse for each forty patients or fraction thereof over one-third, and one practical nurse for each twenty patients or fraction thereof over one-third. (1948 C., Ch. 31, § 77; 1994 C., § 12.52.080.)

12.52.090 Post-graduate nurses.

The Hospital Commissioner is authorized to employ post-graduate nurses at the City Hospital, isolation hospital, Robert Koch hospital, and in the visiting nurse section. (1948 C., Ch. 31, § 78; 1994 C., § 12.52.090.)

12.52.100 School of nursing.

The Hospital Commissioner is authorized to establish and maintain schools of nursing in connection with any of the hospitals conducted by the City to discontinue the operation thereof, and to adopt general rules and regulations governing such schools. (1960 C., § 439.010; 1994 C., § 12.52.100; Ord. No. 44788, § 1, 1948.)

City Counselor Ops.: 8433, 8769

12.52.110 Nurses' advisory board—Established.

There is established in the hospital division a municipal nurses' advisory board of seven members to advise the Hospital Commissioner in matters pertaining to the conduct and management of schools of nursing now or hereafter maintained in any of the hospitals operated by the City. (1960 C., § 439.020; 1994 C., § 12.52.110; Ord. No. 44788, § 2, 1948.)

City Counselor Ops.: 8769

12.52.120 Nurses' advisory board—Appointment—Term.

The members of the board shall be appointed by the Director of Public Welfare and hold office for a term of seven years, provided that the term of one member shall expire two years after January 27, 1949, and so on up to seven years from January 27, 1949. Members may be removed by the Director of Public Welfare with or without cause. Succeeding appointments shall be made for terms of seven years, each beginning on the date when the term of the retiring member expires.

Vacancies on the board shall be filled for the unexpired term. Members shall remain in office after the expiration of their term until their successors are appointed and qualified. (1960 C., § 439.030; 1994 C., § 12.52.120; Ord. No. 44788, § 3(part), 1948.)

City Counselor Ops.: 8769

12.52.130 Nurses' advisory board—Qualifications.

They shall be residents of the City, and upon ceasing to be such residents their office shall be vacated. At least one member shall be a physician interested in nursing education; and at least three shall be women, and no person in the employ of the City shall be appointed to or remain as a member of the board. Members shall serve without compensation but any necessary expenditure of the board may, with the approval of the Hospital Commissioner, be paid out of the fund appropriated for the office of the Hospital Commissioner. (1960 C., § 439.040; 1994 C., § 12.52.130; Ord. No. 44788, § 3(part), 1948.)

City Counselor Ops.: 8769

12.52.140 Nurses' advisory board—Officers—Quorum.

The board shall annually elect from its members a chairman, vice-chairman and secretary, and shall meet once each month, and at such other times as a meeting may be called by the chairman or by the Hospital Commissioner. Four members shall constitute a quorum and only duly appointed and qualified members shall vote. (1960 C., § 439.050(part); 1994 C., § 12.52.140; Ord. No. 44788, § 4(part), 1948.)

City Counselor Ops.: 8769

12.52.150 Nurses' advisory board—Recommendations to Hospital Commissioner.

The board shall, from time to time, confer with the Hospital Commissioner and recommend to him changes it may deem advisable in the rules and regulations governing the schools of nursing or any practice prevailing or condition existing therein, the establishment of additional schools or the discontinuance of existing schools. (1960 C., § 439.050(part); 1994 C., § 12.52.150; Ord. No. 44788, § 4(part), 1948.)

City Counselor Ops.: 8769

12.52.160 Nurses' advisory board—Reports.

The Hospital Commissioner shall make available to the board monthly reports of the activities of the schools of nursing, including such reports as he may have received from the director in charge of any such

school, or copies thereof. (1960 C., § 439.050(part); 1994 C., § 12.52.160; Ord. No. 44788, § 4(part), 1948.)

City Counselor Ops.: 8769

12.52.170 Nurses' advisory board—Consultation.

The board may invite for a conference and consultation the personnel of the schools of nursing or any other officer or employee of the City, or other persons deemed by it to be helpful in the discharge of its functions. (1960 C., § 439.060(part); 1994 C., § 12.52.170; Ord. No. 44788, § 4(part), 1948.)

City Counselor Ops.: 8769

12.52.180 Nurses' advisory board—Graduation duties.

A member of the board shall preside at the graduating exercises, and the board shall issue and award diplomas to students who satisfactorily complete the regularly prescribed course of training in any school of nursing, to be signed by the chairman of the board, the director of nurses, and the superintendent of the hospital at which the school is maintained, and the Hospital Commissioner. Each nurse graduated shall also receive a suitable graduate nurse's badge, pin or other emblem adopted by the board with the following words inscribed: "Hospital School of Nursing, Year, _____." The superintendent of the hospital shall furnish, on requisition by the director of the school of nursing, diploma blanks, emblems, stationery and other material necessary for the conduct of the school and for graduation exercises. (1960 C., § 439.060(part); 1994 C., § 12.52.180; Ord. No. 44788, § 4(part), 1948.)

City Counselor Ops.: 8769

12.52.190 Nurses' advisory board—Appeals.

Students in any school of nursing operated in any hospital of the City may appeal to the board from any disciplinary action or regulation of the officer in charge of such hospital and the board may recommend to the Hospital Commissioner the action to be taken in respect thereto; such recommendation to be of an advisory nature and not to contravene any provision of the civil service amendment to the City Charter or any ordinance, regulation or order lawfully made pursuant thereto. (1960 C., § 439.070; 1994 C., § 12.52.190; Ord. No. 44788, § 5, 1948.)

City Counselor Ops.: 8769

12.52.200 Tuition loans—Established.

There is established a tuition loan and reimbursement program relating to the school of nursing to be administered by the Commissioner of Hospitals and authorizing the Commissioner to enter agreements wherein students at the school of nursing operated by the City are fully relieved of repayments of such tuition loan upon written agreement whereby said student upon graduation agrees to and does serve as a full-time employee in a hospital or nurse-related institution operated by the City for a period of three full years immediately following graduation and that the loan shall be satisfied at a rate of one thirty-sixth of the total amount of the tuition loan for each complete calendar month of hospital or nurse-related institutional service. (1960 C., § 439.100(part); 1994 C., § 12.52.200; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.210 Tuition loans—Written agreement.

Such an agreement shall be evidenced by a note or other written agreement which provides for the payment of the total tuition loan or balance due thereon in installments over a five-year period beginning two months after the student ceases to carry the normal full-time academic workload or said student fails to accept employment as a full-time continuous employee in a hospital or nurse-related institution operated by the City, or without approval of the Commissioner terminates such employment at a hospital or nurse-related institution operated by the City. (1960 C., § 439.100(part); 1994 C., § 12.52.210; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.220 Tuition loans—Security or endorsement.

Said agreement shall be made without security and without endorsement, except that, if the student is a minor and the obligation executed by him or her would not create a binding obligation, either security or endorsement may be required at the option of the Commissioner of Hospitals. (1960 C., § 439.100(part); 1994 C., § 12.52.220; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.230 Tuition loans—Former students—Reimbursements.

The Commissioner is authorized to enter written agreements wherein former students of the school of nursing who are full-time employees of hospitals or nurse-related institutions operated by the City are to be reimbursed by the City for the full amount of tuition

paid subsequent to September 1967 as full-time students in the school of nursing on the basis of one thirty-sixth the total tuition for each additional complete month said employee remains continually in the aforesaid service of the City. (1960 C., § 439.100(part); 1994 C., § 12.52.230; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.240 Tuition loans—Former students—Written agreements.

The Commissioner is further authorized to enter written agreements wherein former students of the school of nursing who are full-time employees of hospitals or nurse-related institutions operated by the City are reimbursed by the City for the full amount of tuition paid subsequent to September 1967 as full-time students in the school of nursing on the basis of one thirty-sixth of the total tuition for each additional continuous complete month said employee remains in the service of the City. (1960 C., § 439.100(part); 1994 C., § 12.52.240; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.250 Tuition loans—Interest.

The agreement shall be made without interest, service charge or security and without endorsement, except that, if the student is a minor and the obligation executed by him or her would not create a binding obligation, either security or endorsement may be required at the option of the Commissioner of Hospitals. (1960 C., § 439.100(part); 1994 C., § 12.52.250; Ord. No. 55678, § 1(part), 1970.)

City Counselor Ops.: 8769

12.52.260 Tuition loans—Extension.

The Commissioner of Hospitals shall have the right to extend any installation payment or balance due under any repayable loan made hereunder for a maximum period of up to one year for maternity leaves of absence or other leaves of absence approved by him and any such leave so granted shall not be construed as interrupting the continuity of service required under Sections 12.52.200—12.52.270. (1994 C., § 12.52.260; Ord. No. 55678, § 2, 1970.)

12.52.270 Tuition loans—Death or disability.

Any liability incurred hereunder shall be cancelled upon the death or permanent, total disability of the debtor. (1994 C., § 12.52.270; Ord. No. 56678, § 3, 1970.)

Chapter 12.56

REPORTING GUNSHOT AND KNIFE WOUNDS

RSMo:

RSMo 578.350 (2016) Medical deception

Sections:

12.56.010 Report required.

12.56.020 Failure to report.

12.56.010 Report required.

Every practitioner of medicine and surgery licensed under RSMo Ch. 334 (1949), and every practitioner of osteopathy licensed under RSMo Ch. 337 (1949), shall report immediately to the St. Louis Police Department the name and address of each person, if known, and if unknown, the description of such person treated or applying for treatment to such practitioner of an injury caused by or inflicted by gun shot or a knife. The report shall describe the circumstances under which the treatment was rendered by such practitioner. (1960 C., § 785.010; 1994 C., § 12.56.010; Ord. No. 48339, § 1, 1957.)

12.56.020 Failure to report.

Every practitioner of medicine and surgery licensed under RSMo Ch. 334 (1949), and every practitioner of osteopathy licensed under RSMo Ch. 337 (1949), who shall fail to make a report to the St. Louis Police Department as provided in Section 12.56.010 shall be deemed guilty of a misdemeanor and upon the conviction thereof shall be fined the sum of not less than one hundred dollars nor more than five hundred dollars. (1994 C., § 12.56.020; Ord. No. 48339, § 2, 1957.)

Title 13

(RESERVED)

Title 14

ALCOHOLIC BEVERAGES

Chapters:

14.01	**Definitions**
14.02	**Excise Division**
14.03	**General Regulations**
14.04	**Regulations Relating to Minors**
14.05	**General Violations**
14.06	**General Licensing**
14.07	**Manufacturers, Wholesalers and Distributors**
14.08	**Retail Licenses**

Chapter 14.01

DEFINITIONS

Editor's Note:

Ord. No. 71819, § 2, approved April 16, 2024, amended the Code by repealing former Ch. 14.01, §§ 14.01.010—14.01.450, and adding a new Ch. 14.01. Former 14.01 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009; and Ord. No. 69346, approved December 20, 2012.

Sections:

14.01.010	**Generally.**
14.01.020	**Definitions.**
14.01.030	**Ballroom.**
14.01.040	**Boat.**
14.01.050	**Brewpub.**
14.01.060	**Club.**
14.01.070	**C.O.L. license.**
14.01.080	**Commissioner.**
14.01.090	**Common eating and drinking area.**
14.01.095	**Conducting business.**
14.01.100	**Controlled access liquor cabinet.**
14.01.110	**Controlled access liquor cabinet system.**
14.01.120	**Convention trade area.**
14.01.122	**Corporate signature.**
14.01.130	**Disorderly place.**
14.01.140	**Drink license.**
14.01.150	**Employees.**
14.01.155	**Et al.**
14.01.160	**Hotel.**
14.01.170	**Intoxicating liquor.**
14.01.180	**Lewd and indecent conduct.**
14.01.190	**License.**
14.01.200	**Licensed premises.**
14.01.202	**Majority.**
14.01.210	**Mall.**
14.01.220	**Microbrewery.**
14.01.230	**Motion picture theater.**
14.01.240	**Motor vehicle service station.**
14.01.245	**Nightclub.**
14.01.250	**Nonintoxicating beer.**
14.01.260	**Nonresident wholesaler, manufacturer and distributor.**
14.01.270	**Obscene.**
14.01.280	**Off premises gift shop.**
14.01.290	**Original package.**
14.01.300	**Package license.**
14.01.310	**Performance.**
14.01.320	**Person.**
14.01.330	**Petition circle.**
14.01.335	**Picnic group—Defined.**
14.01.340	**Picnic license.**
14.01.350	**Premises.**
14.01.352	**Private place.**
14.01.353	**Public place.**
14.01.354	**Property owner.**
14.01.360	**Qualified establishment (restaurant/bar).**
14.01.370	**Qualified packages or containers.**
14.01.380	**Registered guest.**
14.01.390	**Resort.**
14.01.400	**Restaurant bar.**
14.01.410	**Retail license.**
14.01.420	**Room.**
14.01.430	**Standard size bowling lane.**
14.01.435	**Sunday ballroom license.**
14.01.436	**Sunday convention trade area license.**
14.01.440	**Taproom brewery.**
14.01.450	**Tenant or resident.**
14.01.460	**3:00 a.m. closing permit.**
14.01.470	**Transportation company.**

14.01.480 Wholesale liquor dealing agent.

14.01.010 Generally.

This title shall be known and may be cited as the "Liquor Control Laws of the City of St. Louis."
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.020 Definitions.

For the purposes of this title the terms herein used shall have the meaning given in this chapter.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.030 Ballroom.

A single facility that is at least fifty (50) years old, located in a business district, with a seating capacity of at least six hundred (600) persons, and with a dance floor of at least four thousand eight hundred (4,800) square feet.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.040 Boat.

The term "boat" shall mean any watercraft, boat or barge, docked, or operating on a river passing through the City limits and which docks within the City limits as defined by law.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.050 Brewpub.

A licensed establishment that sells twenty-five (25) percent or more of its beer on-site and operates significant food services.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.060 Club.

The term "club" shall mean any organization whether incorporated or not, of fifty (50) or more members, twenty-one (21) years old or older, not formed for profit, where the property and equipment of the organization, exclusive of real estate and alcoholic beverages, belongs to the members thereof, and is of the value of at least one thousand dollars ($1,000.00) according to invoices.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.070 C.O.L. license.

The term "C.O.L. license" shall mean a license that permits the consumption of intoxicating liquor and nonintoxicating beer on any premise(s) where food, beverages or entertainment are sold or provided for compensation. The license shall not permit the drinking or consumption of intoxicating liquor or nonintoxicating beer in or upon the licensed premise(s) by any person under twenty-one (21) years of age, or by any other person between the hours of 1:30 a.m. and 6:00 a.m. on any weekday, and between the hours of 1:30 a.m. Sunday and 6:00 a.m. Monday.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.080 Commissioner.

The term "Commissioner" shall mean the Excise Commissioner, and, where not otherwise indicated by the context, his deputy or any of his duly appointed subordinates.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.090 Common eating and drinking area.

"Common eating and drinking area" means:

A. An area or areas within a building or group of contiguous buildings, approved by the Excise Commissioner, designated for eating of food and drinking of intoxicating liquor or nonintoxicating beer sold at retail by establishments which do not provide areas within their premises for the consumption of food and liquor;

B. Where the costs of maintaining such area or areas are shared by the payment of common area maintenance charges as provided in the respective leases permitting the use of such area; or otherwise; and

C. Where the annual gross income from the sale of prepared meals or food consumed in such common eating and drinking area is or is projected to be at least two hundred seventy-five thousand dollars ($275,000.00).

D. Said common eating and drinking area is located within a mall.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.095 Conducting business.

The term "conducting business" shall mean the operation of a business in a building or on a parcel of land which has either a business license from the City of St. Louis or a professional license from the State of Missouri.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.100 Controlled access liquor cabinet.

The term "controlled access liquor cabinet" shall mean a closed container, either refrigerated in whole or in part or non-refrigerated, access to the interior of which is restricted by means of a locking device which requires the use of a key.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.110 Controlled access liquor cabinet system.

The term "controlled access liquor cabinet system" shall mean a system for the sale of intoxicating liquor in qualified packages or containers in the rooms provided for the overnight accommodation of transient guests in a qualified establishment by means of a controlled access liquor cabinet, and such system shall permit the licensee to maintain in the rooms provided for the overnight accommodation of transient guests a controlled access liquor cabinet in which such licensee may maintain for sale intoxicating liquor in qualified packages or containers, together with, if desired, other beverages or food, and such system shall permit the adult registered guests of the room in which such controlled access liquor cabinet is located to use the key, magnetic card or other similar device to gain access to such controlled access liquor cabinet to obtain the intoxicating liquor or other beverages or food for consumption.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.120 Convention trade area.

The term "convention trade area" shall mean the entire area within the corporate boundaries of the City of St. Louis, except for such areas as may be designated by ordinance.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.122 Corporate signature.

The term "corporate signature" shall mean the signature of a corporate president and/or the secretary president, secretary, or other duly authorized officer of the corporation and such signature shall include the name of the corporation and the title of the individual who signs for the corporation.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.130 Disorderly place.

The term "disorderly place" shall include, but not be limited to, any licensed premises which are found by the Commissioner to be open to and frequented by persons who so conduct themselves there as to violate the law, create disturbances, fight or otherwise disturb the general peace or the peace of individuals.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.140 Drink license.

The terms "full drink license," "full drink Sunday license" or "drink license (twenty-two (22) percent drink license)," means a license or permit for the retail sale of intoxicating liquor and/or nonintoxicating beer by the drink for consumption on the premises where sold. A person to whom such drink license has been issued under the provisions of this chapter or title shall also be permitted to sell in the original package for consumption off premises such intoxicating liquor and/or nonintoxicating beer as he is permitted to sell by the drink under the terms of the license held by him. The above general definition shall be applicable to the drink licenses which may be issued under this chapter or title, unless otherwise provided by the specific definition thereof or by conditions imposed by the Excise Commissioner. The drink licenses which may be issued under this chapter, title, and the definitions thereof, are as follows:

A. *Full drink license.* "Full drink license" means a license that shall permit the retail sale of intoxicating liquor and nonintoxicating beer. This license authorizes the licensee to sell intoxicating and nonintoxicating beer by the drink for consumption on the licensed premises from 6:00 a.m. to 1:30 a.m. Monday through Saturday.

B. *Full drink Sunday license.* "Full drink Sunday license" means a license that shall permit the retail sale on Sundays of intoxicating liquor and nonintoxicating beer. This license authorizes the licensee to sell intoxicating liquor and nonintoxicating beer by the drink for consumption on the licensed premises from 9:00 a.m. and midnight on Sunday. If the licensed premise(s) is located on the grounds of a sports stadium used primarily for professional sporting events, intoxicating liquor and nonintoxicating beer by the drink at retail for consumption on the premises may be sold between the hours of 8:00 a.m. and midnight on Sunday. Such license may only be issued where the licensed premises are a restaurant, as that term is defined in this chapter, and may only be issued to persons to whom a City full drink license has been issued. A full drink Sunday license shall be null and void any time the corresponding full drink intoxicating liquor license has been suspended, canceled or revoked by a decision of the Excise Commissioner or has been allowed to lapse by the licensee.

C. *Drink license (twenty-two (22) percent drink license).* The term "twenty-two (22) percent drink license" shall mean a license that shall permit the sale of wine containing alcohol not in excess of twenty-two (22) percent by weight, malt liquor containing alcohol not in excess of five (5) percent by weight, and nonintoxicating beer.

D. *Five (5) percent drink license (beer license).* The term "five (5) percent drink license (beer license) shall mean a license that permits the sale of malt liquor containing alcohol not in excess of five (5) percent by weight and nonintoxicating beer.

E. *Special sports stadium license.* The term "special sports stadium license" shall mean a license that permits the holder thereof to sell malt liquor, malt liquor containing alcohol not in excess of five (5) percent by weight and nonintoxicating beer, for consumption only on the premises where sold, between the hours of 11:00 a.m. on Sunday and 1:30 a.m. on the following Monday. Such license may only be issued: (1) where the licensed premises is a sports stadium, arena or auditorium used primarily for exhibition of professional sporting events and (2) only to a person who possesses a valid drink license issued under the provisions of this chapter or title.

F. *Ballroom Sunday sales permit.* The term "ballroom Sunday sales permit" shall mean a permit that allows a person or establishment who operates a ballroom and who possesses a full drink license to sell intoxicating liquor by the drink at retail for consumption on the premises of the ballroom between the hours of 11:00 a.m. and midnight on Sundays.

G. *Places of entertainment or amusement Sunday sales permit.*

1. The term "places of entertainment Sunday sales permit" or "amusement Sunday sales permit" shall mean a permit that allows for the sale of intoxicating liquor between the hours of 9:00 a.m. on Sunday and midnight on Sunday by any person who possesses a full drink liquor license for a premise which is a "place of entertainment" or a "place of amusement." Nothing in this section shall be construed to permit the licensee to sell intoxicating liquor or nonintoxicating beer for off premises consumption.

2. The term "temporary place of amusement Sunday sales permit" shall mean a permit that may be issued to a "place of amusement" having been in operation less than ninety (90) days. This permit may be issued for a period not to exceed ninety (90) days, if such place of amusement can show projection of gross business receipts of at least one hundred thousand dollars ($100,000.00), at least fifty thousand dollars ($50,000.00) shall be derived from sources other than the sale of alcoholic beverages.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.150 Employees.

The term "employees" shall mean persons who work or perform services for or without compensation for a person licensed under the provisions of this title.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.155 Et al.

The term "et al." shall mean "and others."
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.160 Hotel.

The term "hotel" shall mean every building or other structure kept, used, maintained, advertised or held out to the public as a place where sleeping accommodations are furnished for pay to transient or permanent guests, in which twenty (20) or more rooms are furnished for the accommodation of such guests, whether with or without meals, as evidenced by a license issued by the City to the person owning, keeping, using, maintaining, advertising or holding out the place to the public to be a place where such accommodations are furnished.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.170 Intoxicating liquor.

The term "intoxicating liquor" shall mean alcohol for beverage purposes, alcoholic, spirituous, vinous, fermented malt or other liquors or combination of liquors, a part of which is spirituous, vinous or fermented, and all preparations or mixtures for beverage purposes containing in excess of three and two-tenths (3.2) percent alcohol by weight. This definition also includes marijuana infused beverages to the extent allowed by law.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.180 Lewd and indecent conduct.

A. As used herein, the term "lewd and indecent conduct" shall mean:

1. The exposure of one's genitals, buttocks, vulva, pubic hair or the female breast below a point immediately above the top of the areola, except for breast feeding;

2. The touching, caressing or fondling of the breasts, buttocks or genitals, whether clothed or unclothed, for the purpose of sexual arousal or gratification;

3. The touching, caressing or fondling of the breasts, buttocks or genitals, whether clothed or unclothed, which is likely to cause affront or alarm; and

4. Acts or representations of acts of human masturbation, sexual intercourse or sodomy, bestiality, cunnilingus, fellatio or flagellation.

B. Conduct which is not obscene is not lewd or indecent for purposes of this chapter and title if:

1. It occurs as part of a performance and does not involve exposure of one's genitals, buttocks, vulva, pubic hair or the female breast below a point immediately above the top of the areola;

2. It occurs as part of a performance at a place that has a seating capacity for patrons in excess of nine hundred fifty (950) persons, and which has annual ticket sales for admissions thereto in excess of seven hundred fifty thousand dollars ($750,000.00); or

3. It is portrayed or depicted in a motion picture which is shown or exhibited at a motion picture theater.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.190 License.

Except as otherwise indicated, the term "license" includes permits issued under this chapter and title.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.200 Licensed premises.

The term "licensed premises" shall mean that building, portion of a building, boat or portion thereof, place or area in which a person holding a "drink," "package" or "C.O.L." license, as those terms are defined in this chapter, is permitted or authorized to conduct business pursuant to such license. If not otherwise specified, the license shall apply without restriction to the licensee's entire premises as defined in 14.01.350. All license applications and renewal applications filed with the Excise Division after the effective date of this ordinance shall contain a description of the licensed premises in a form acceptable to the Excise Commissioner.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.202 Majority.

The term "majority" shall mean more than half of the total number of eligible persons within the petition circle, in a particular category. Property owners is a category and tenants/occupants are a category.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.210 Mall.

The term "mall" shall refer to a building or group of contiguous buildings that contain a minimum of fifty thousand (50,000) square feet and that provide space available for a minimum of twenty-five (25) individual retail establishments selling at retail among other things any or all of the following: goods, wares, merchandise, food, foodstuffs and/or beverages.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.220 Microbrewery.

A business whose primary activity is the brewing and selling of beer, with an annual production of ten thousand (10,000) barrels or less. A microbrewery application for approval of a license shall be exempt from the provisions of Section 14.08.060 of this title unless they seek a license through the process outlines in 14.08.060.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.230 Motion picture theater.

The term "motion picture theater" shall mean a building or portion of a building in which motion pictures are regularly exhibited which:

A. Has at least one (1) permanently affixed screen, of a minimum size of two hundred (200) square feet, for exhibition of motion pictures;

B. Has a minimum of one hundred (100) permanently affixed seats; and

C. The public is invited to enter in return for the purchase of a ticket or the payment of an entry charge.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.240 Motor vehicle service station.

The term "motor vehicle service station" shall mean a place licensed by the state or city to sell or offer for sale gasoline or other motor fuels used as fuels in internal combustion engines for the purpose of propelling an automobile, truck or other self propelling self-propelling motor vehicle upon the public highways, streets, and thoroughfares of the City.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.245 Nightclub.

The term "nightclub" shall mean an establishment that often charges a cover charge and primarily provides entertainment, including live and recorded music amplified through speakers for listening or dancing, and whose secondary function may include the sale and consumption on the premises of prepared food and/or alcoholic beverages.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.250 Nonintoxicating beer.

The term "nonintoxicating beer" shall mean any beer manufactured from pure hops or pure abstract of hops, and pure barley, malt, and other wholesome grains or cereals, and wholesome yeast and pure water, and free from all harmful substances, preservatives and adulterants, and having an alcoholic content of more than one half of one (0.5) percent by volume, and not exceeding three and two-tenths (3.2) percent by weight. (Ord. No. 71819, § 2, 4-16-2024.)

14.01.260 Nonresident wholesaler, manufacturer and distributor.

The term "nonresident wholesaler, manufacturer and distributor" shall mean any person residing or located in the state, outside of the City, licensed by the state to solicit, receive or take orders for the purchase, sale and delivery of any intoxicating liquor or nonintoxicating beer to any person residing in or located in the City for resale. A nonresident wholesaler, manufacturer or distributor shall obtain a liquor license to sell or deliver liquor products in the City of St. Louis. (Ord. No. 71819, § 2, 4-16-2024.)

14.01.270 Obscene.

A performance is "obscene" if:

A. Applying contemporary community standards, its predominant appeal is to prurient interest in sex;

B. Taken as a whole, the average person, applying contemporary community standards, would find that it depicts or describes sexual conduct in a patently offensive manner; and

C. Taken as a whole, it lacks serious literary, artistic, political or scientific value. Obscenity shall be judged with reference to its impact upon ordinary adults. (Ord. No. 71819, § 2, 4-16-2024.)

14.01.280 Off premises gift shop.

The term "off premises gift shop" shall mean a retail store that does not permit any goods sold on the premises to be delivered to the purchaser on such premises.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.290 Original package.

The term "original package" shall mean the original unopened container with an unbroken seal thereon, in which intoxicating liquor or nonintoxicating beer has been shipped by the distiller, brewer, or bottler thereof to a distributor, wholesaler or retail merchant. (Ord. No. 71819, § 2, 4-16-2024.)

14.01.300 Package license.

The term "package license" shall mean a license for the retail sale of intoxicating liquor and/or nonintoxicating beer, in the original package, which is not to be consumed on the premises where sold. The above general definition shall be applicable to the package licenses which may be issued under this chapter or title, unless otherwise provided by the specific definition thereof. The package licenses which may be issued under this chapter and title, and the definitions thereof, are as follows:

A. *Full package license.* The term "full package license" shall mean a license that permits the sale at retail of intoxicating liquor and nonintoxicating beer in the original package.

B. *Twenty-two (22) percent package license.* The term "twenty-two (22) percent package license" shall mean a license that permits the retail sale of intoxicating liquor, containing alcohol not in excess of twenty-two (22) percent by weight, and nonintoxicating beer in the original package.

C. *Five (5) percent package license.* The term "five (5) percent package license" shall mean a license that permits the retail sale of malt liquor, containing alcohol not in excess of five (5) percent by weight, and of nonintoxicating beer in the original package.

D. *Tasting permit.* The term "tasting permit" shall mean a permit that allows a licensee to conduct wine, malt beverage and distilled spirit tastings on the licensed premises and such establishment shall also have a "package license."
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.310 Performance.

The term "performance" means any play, dance, exhibition or the playing of music by one (1) or more persons, provided that:

A. Such performance occurs on a stage or platform;

B. There is no intentional physical contact between the audience and the persons participating in the performance during the performance; and

C. One or more of the persons participating in the performance receive compensation for such participation.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.320 Person.

The term "person" shall mean an individual, association, club, joint stock company, syndicate, partnership, corporation, receiver, trustee, conservator, or other officer appointed by any state or federal court.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.330 Petition circle.

A. For each premises for which a retail license has been issued or for which an application for a retail license has been submitted to the Excise Commissioner, other than a picnic license, restaurant bar, brewpub, microbrewery, or taproom there shall be a petition circle unless such entity elects to pursue their license in accordance with 14.08.060. Such petition circle shall hereby be defined as an area, circular in shape, with a radius of three hundred fifty (350) feet drawn from the center of the front entrance of the licensed premises projected to the street.

B. Notwithstanding the provisions of subsection A of this section, the petition circle for a 3:00 a.m. permit shall be an area, circular in shape, drawn by a radius of five hundred (500) feet drawn from the center of the front entrance of the premises projected to the street.

C. When a multi-floor building falls within the petition circle, the petition circle shall include only the main floor, the two (2) floors immediately above the main floor, and the floor immediately below the main floor. (When a portion of a condominium building is within the petition circle, the condominium association, regardless of its office location, shall be considered within the petition circle).

D. If any part of a building or parcel of real property falls within the petition circle, the entire building or parcel shall be considered within the circle.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.335 Picnic group—Defined.

A gathering of two (2) or more people, where a meal is being, has been or will be consumed, no charge is had for admission, and alcohol is not sold in any form. A picnic group shall not include any group gathered on a street or parking lot.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.340 Picnic license.

The term "picnic license" means a license or permit issued to any church, school, civic, service, fraternal, veteran, political or charitable club or organization for sale of intoxicating liquor and/or nonintoxicating beer at a picnic, bazaar, fair, or similar gathering. Said license or permit shall authorize sale of intoxicating liquor or nonintoxicating beer only for the day or days named therein and it shall not authorize the sale of any nonintoxicating beer or intoxicating liquor for more than seven (7) days per event by any said organization in any calendar year. A separate picnic license shall be obtained for each booth per requested area. There shall be two (2) separate types of picnic licenses, one authorizing sale of intoxicating liquor and nonintoxicating beer and another authorizing sale of nonintoxicating beer and intoxicating malt liquor containing alcohol not in excess of five (5) percent by weight. A picnic license shall be required where an organization eligible for a picnic license charges an admission fee or sells tickets for an event at which intoxicating liquor or nonintoxicating beer is served to persons attending such event, whether or not intoxicating liquor or nonintoxicating beer is sold at such event. If the event will be held on Sunday, the permit shall authorize the sale of intoxicating liquor and nonintoxicating beer on that day beginning at 11:00 a.m. until 12:00 midnight.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.350 Premises.

The term "Premises" shall mean the entire building in which a licensee has his place of business and any additional building use in connection therewith, and the entire lot or lots, parcel or parcels of land on which the buildings are situated, or which are used in connection with the buildings, and shall also include a boat, or boats, a barge or barges, moored or operating on a river.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.352 Private place.

The term "private place" shall mean any place not considered a public place.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.353 Public place.

The term "public place" shall mean a place to which the general public has a right to use.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.354 Property owner.

The term "property owner" shall mean any person, eighteen (18) years of age or older, who owns or co-owns real estate that is touched by or is within the

petition circle. A property owner shall be only counted once in the total number of property owners and only one (1) signature of a property owner is accepted as valid regardless of the number of real estate parcels that the individual or entity owns or co-owns within the petition circle. In addition to the requirements above, a property owner for purposes of the applicable provision within this title as it relates to a protest petition against a restaurant bar, taproom, microbrewery or brewpub shall only include those property owner individuals who physically reside at the subject property.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.360 Qualified establishment (restaurant/bar).

The term "qualified establishment" means any establishment having at least forty (40) rooms for the overnight accommodation of transient guests and having a restaurant or similar facility on the premises where at least sixty (60) percent of the gross income of which is derived from the sale of prepared meals or food, which restaurant's annual gross food sales for the past two (2) years immediately preceding its application for a license shall not have been less than one hundred thousand dollars ($100,000.00) per year or, if such restaurant has been in operation for less than two (2) years, such restaurant has been in operation for at least ninety (90) days preceding the application for license for sale of intoxicating liquor by means of controlled access liquor cabinets and has a projected experience based upon its sale of food during the preceding ninety (90) days which would exceed one hundred thousand ($100,000.00) per year. Any restaurant bar licensed under this section which is located on the grounds of a sports stadium primarily used for professional sporting events may sell intoxicating liquor by the drink at retail for consumption within the premises of the restaurant bar on Sunday between the hours of 8:00 a.m. and 12:00 midnight. The licensed premises must also have a 3:00 a.m. closing permit.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.370 Qualified packages or containers.

The term "qualified packages or containers" shall mean packages or containers for intoxicating liquor, other than beer or other malt liquor, which holds not less than fifty (50) milliliters and not more than two (2) hundred milliliters, and any packages or containers for beer or other malt liquor.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.380 Registered guest.

The term "registered guest" means each person who signs his name to the guest register of a qualified establishment or takes some other equivalent action for the purpose of registering as a guest of such qualified establishment.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.390 Resort.

The term "resort" means any establishment having at least thirty (30) rooms for the overnight accommodations of transient guests, having a restaurant or similar facility on the premises where at least sixty (60) percent of the gross income of which is derived from the sale of prepared meals or food, or means a restaurant provided with special space and accommodations where, in consideration of payment, food, without lodging, is habitually furnished to travelers and customers, and which restaurant establishment's annual gross sales shall not have been less than seventy-five thousand ($75,000.00) per year, or means a new restaurant establishment having been in operation for at least ninety (90) days preceding the application for such license, with a projected experience based upon its sale of food during the preceding ninety (90) days which would exceed not less than seventy five thousand dollars ($75,000.00) per year, with at least fifty thousand dollars ($50,000.00) of such gross receipts from nonalcoholic sales, or means a seasonal resort restaurant with food sales as determined by this section. A seasonal resort restaurant is a restaurant which is not a new restaurant establishment and which is open for business eight (8) or fewer consecutive months in any calendar year. Fifty (50) percent of all gross sales of such restaurant shall be sales of prepared meals. Any facility which is owned and operated as a part of the resort may be used to sell intoxicating liquor by the drink for consumption on the premises of such facility and, for the purpose of meeting the annual gross food sales requirements of this subsection, if any facility which is a part of the resort meets such requirement, such requirement shall be deemed met for any other facility which is a part of the resort.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.400 Restaurant bar.

The term "restaurant bar" shall mean any establishment having a restaurant or similar facility on the premises where at least fifty (50) percent of the gross income is derived from the sale of prepared meals or

food consumed on the premises or which has an annual gross income of at least two hundred thousand dollars ($200,000.00) from the sale of prepared meals or food consumed on such premises. Convenience stores, motor fuel pumping stations, package liquor stores, or any establishment that operates in whole or in part as a nightclub, shall not be granted a license as a restaurant bar. Moreover, in the event that an establishment licensed as a restaurant bar starts functioning in whole or in part as a nightclub, the Excise Commissioner shall immediately revoke that restaurant bar liquor license. The licensee must submit a food and liquor verification statement signed by the licensee showing an annual gross income of at least two hundred thousand dollars ($200,000.00) from the sale of prepared meals or food consumed on such premises. A licensee of a restaurant bar may sell intoxicating liquor between the hours of 9:00 a.m. on Sunday and midnight on Sunday by the drink at retail for consumption on the premises of any restaurant bar or on the premises of any establishment and/or having at least forty (40) rooms for overnight accommodations of transient guests. No restaurant bar shall sell alcohol beyond midnight and food must be available for consumption at all times when alcohol is served. The maximum square footage of any restaurant bar as provided in this provision shall be four-thousand (4,000) square feet. Additionally, any restaurant bar pursuant to this provision must possess a satisfactory Health Department rating for the operation of a restaurant bar as defined herein.

Further, any restaurant bar, microbrewery, taproom, or brewpub as defined herein shall be subject to potential inspection up as many times as deemed necessary by the Excise Commissioner for compliance by license holder with the appropriate use of the licensed premises and for compliance with other relevant provisions of this title. There shall be provided a grace period for a newly licensed restaurant bar to accomplish the above ratios and production of gross income as specified. This would be a six-month period at the outset, which could be subject to extension for good cause shown at the direction of the Commissioner. Other provisions of this title which relate to the license approval process for a restaurant bar are contemplated within Sections 14.06.025 and 14.06.028 of this title. A restaurant bar application for approval of a license shall be exempt from the provisions of Section 14.08.060 to 14.08.080 of this title unless they seek a license through the process outlined in 14.08.060 to 14.08.080.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.410 Retail license.

The term "retail license" refers to any and all drink, C.O.L., package, and picnic licenses and to 3:00 a.m. closing permits, common eating and drinking area permits, temporary catering permits and controlled access liquor cabinet system permits.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.420 Room.

The term "room" shall mean a room in a qualified establishment which is intended to be used as and which is provided for the overnight accommodation of transient guests.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.430 Standard size bowling lane.

The term "standard size bowling lane" shall mean any bowling lane constructed according to the specifications contained in the "American Bowling Congress, Complete Construction Rules and Regulations Season 1958 1959" as amended.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.435 Sunday ballroom license.

The term "Sunday ballroom" shall mean any establishment located in a business district with a seating capacity of at least six hundred (600) persons and with a dance floor of at least four thousand eight hundred (4,800) square feet that allows a licensee to sell intoxicating liquor by the drink at retail on the premises between the hours of 11:00 a.m. and midnight on Sundays.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.436 Sunday convention trade area license.

The term "Sunday convention trade area license" shall mean a license that allows a qualifying business establishment that is located in a convention trade area to sell intoxicating liquor by the drink at retail or by the drink between the hours of 9:00 a.m. and midnight on Sunday. In order to qualify for such a license, the business establishment's annual gross receipts for the year immediately preceding the application for this license shall not have been less than one hundred fifty thousand dollars ($150,000.00) of which at least sixty thousand dollars ($60,000.00) of such gross receipts is in nonalcoholic sales. Any new licensee possessing a license to sell intoxicating liquor by the drink at retail may apply for a temporary Sunday convention trade area license and shall show a projection of annual gross

receipts of not less than one hundred thousand dollars ($100,000.00) of which at least sixty thousand dollars ($60,000.00) of such gross receipts is in nonalcoholic sales.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.440 Taproom brewery.

A licensed establishment that sells twenty-five (25) percent or more of its beer on-site and does not operate significant food services. The beer is brewed primarily for sale in the taproom. A taproom brewery application for approval of a license shall be exempt from the provisions of Section 14.08.060 of this title unless they seek a license through the process outlines in 14.08.060.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.450 Tenant or resident.

The term "tenant or resident" shall mean any person whose domicile (home) is within the petition circle and who is registered to vote from such address within the petition circle on the date on which the application is filed or the date in which a protest is initiated. For purposes of this title, a tenant, or resident shall also include individuals who reside within the petition circle and are able to demonstrate they reside within the petition circle through other proof of same, which can include recent utility bills or other proof of residence at the location satisfactory to the Division of Excise. Those who use an alternative form of identification as determined by the Excise Commissioner, will be identified as the resident at that address in lieu of the previously registered voter at that location. Prior to the effective date of this ordinance, the Excise Division shall promulgate rules detailing the appropriate procedure for alternative identification and verification.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.460 3:00 a.m. closing permit.

The term "3:00 a.m. closing permit" is a permit which allows the sale and consumption of intoxicating liquor during the hours of 1:30 a.m. to 3:00 a.m. Tuesday through Sunday, except that where a 3:00 a.m. permit has been issued to a person who possesses a full drink Sunday license the 3:00 a.m. permit also allows the sale and consumption of liquor from 1:30 a.m. to 3:00 a.m. on Monday. A 3:00 a.m. permit may only be issued to a person who possesses a City full drink license and who meets the requirements of Section 14.08.220.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.470 Transportation company.

The term "transportation company" shall mean any individual, partnership, co partnership or legal entity engaged in the business of transportation for hire of goods and merchandise by use or means of any vessel, railroad car, motor vehicle, airplane or other means of conveyance whatsoever.
(Ord. No. 71819, § 2, 4-16-2024.)

14.01.480 Wholesale liquor dealing agent.

The term "wholesale liquor dealing agent" shall mean any person who solicits, receives or takes orders for the purchase and delivery of any intoxicating liquor to any person in the City for resale.
(Ord. No. 71819, § 2, 4-16-2024.)

Chapter 14.02.

EXCISE DIVISION

Editor's Note:

Ord. No. 71819, § 3, approved April 16, 2024, amended the Code by repealing former Ch. 14.02, §§ 14.02.010—14.02.090, and adding a new Ch. 14.02. Former 14.02 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009.

Sections:

14.02.010	**Established.**
14.02.020	**Deputies and employees and hearing officers.**
14.02.030	**Powers and duties.**
14.02.040	**Power of Excise Commissioner to impose certain terms and conditions on a license—When.**
14.02.060	**Oath and bond.**
14.02.070	**Interest in places manufacturing or selling intoxicating liquor or nonintoxicating beer.**
14.02.080	**Reports to state supervisor.**
14.02.090	**Reports to the Mayor.**
14.02.100	**Neglect of duty—Removal from office.**

14.02.010 Established.

The Excise Division was established as a part of the Department of Public Safety by Ordinance 40274 on March 23, 1934. The chief officer of the Excise Division shall be the Excise Commissioner, who shall be appointed by the Director of Public Safety.
(Ord. No. 71819, § 3, 4-16-2024.)

14.02.020 Deputies and employees and hearing officers.

The Excise Commissioner may appoint the following employees in the Excise Division:

A. A Liquor Control Supervisor, whose duties shall be the same as those prescribed for the Excise Commissioner, to be performed by him at the direction and under the control and supervision of the Excise Commissioner, and who, during the absence of the Excise Commissioner, shall act as such; and

B. Such Liquor Control Officers, clerical, stenographic, and inspection personnel as are necessary to discharge the duties and responsibilities of the division. Excise Division employees shall have the power to administer oaths and take testimony in the official discharge of the duties of the Excise Division. Upon delegation in writing by the Commissioner or the Director of Public Safety, the senior Liquor Control Officer, in the absence of the Excise Commissioner and the Liquor Control Supervisor, may perform all duties and acts which the Commissioner is empowered to perform under the provisions of this chapter and title. In the event of a vacancy in the position of Excise Commissioner, the powers and duties of the Excise Commissioner shall be conferred upon the Director of Public Safety or his delegate.

C. The Director of Public Safety or the Excise Commissioner may utilize independent hearing officers as needed to complete the hearing requirements within this title.

(Ord. No. 71819, § 3, 4-16-2024.)

14.02.030 Powers and duties.

The duties of the Excise Commissioner shall be as follows:

A. To make recommendations to the License Collector for the issuance and renewal of licenses provided for under this chapter and title;

B. To revoke, cancel, suspend or fine for cause all licenses or permits issued pursuant to the provisions of this title;

C. To prescribe all forms for applications, and such other forms as are necessary to carry out the provisions of this title;

D. To prescribe the terms and conditions of licenses or permits granted and issued pursuant to this title;

E. To prescribe the nature of the proof to be furnished and the conditions to be observed, and the manner of all applications or licenses or permits;

F. To issue subpoenas and all necessary processes.

G. Require the production of papers, administer oaths and take testimony, investigate all applications for licenses or permits under the terms of this title and all complaints or reports concerning the conduct of any business carried on under licenses issued pursuant to this title; and

H. To issue permits provided for by this chapter and title.

I. The Excise Commissioner shall have the power to make rules, regulations, orders and directions as may be necessary and feasible for carrying out the duties of his office and as are not inconsistent with the provisions of this Code.

(Ord. No. 71819, § 3, 4-16-2024.)

14.02.040 Power of Excise Commissioner to impose certain terms and conditions on a license—When.

A. If, following a hearing held pursuant to any of the provisions of Sections 14.08.060 through 14.08.130, the Excise Commissioner determines that the issuance or renewal of a retail liquor license would not be detrimental to the neighborhood in which the licensed premises is or would be located, but that upon consideration of the factors listed in Section 14.08.040, a condition or conditions which are not in the best interest of such neighborhood exist with respect to such premises, or would exist if a license were issued for such premises, he may impose upon the license for such premises one (1) or more of the terms and conditions set out in subsection C of this section at the time that he issues or renews the license. The Excise Commissioner shall impose only such terms and conditions as are reasonably calculated to remedy or ameliorate the offending condition.

Notwithstanding any other provision of this section, the Excise Commissioner need not hold a hearing prior to imposing one (1) or more of the terms and conditions set out in subsection C if the licensee or applicant has expressly waived the right to a hearing or has agreed to the imposition of particular terms and conditions.

B. If it is determined after a hearing that a licensee or one (1) or more of the licensee's agents, servants or employees has violated the provisions of this chapter or title, order or regulation, there may be

imposed upon the licensee one (1) or more of the terms and conditions set out in subsection C of this section. There shall only be imposed such terms and conditions as are reasonably calculated to prevent, or reduce the likelihood of, recurrence of the violation. Notwithstanding any other provision of this section, the Excise Commissioner need not hold a hearing prior to imposing one (1) or more of the terms and conditions set out in subsection C upon a license where the licensee has expressly waived his right to a hearing on the violation or has admitted that either he or one (1) or more of his agents, servants or employees has violated the provisions of this chapter or title.

C. When authorized to do so pursuant to the provisions of subsections A and B of this section, there may be imposed one (1) or more of the following terms and conditions on a license:

1. Reasonable restrictions on the hours during which a licensee may operate;

2. Prohibiting the sale of package liquor upon premises for which a drink license has been issued or allowing the sale of package liquor upon such premises only during specified hours;

3. Limiting the sale of package liquor upon premises for which a drink license has been issued to packages containing no more than a specified percentage of alcohol by weight or volume;

4. Limiting the sale of intoxicating liquor upon premises for which a full drink license, a full drink picnic license, a twenty-two (22) percent drink license, a full package license or a twenty-two (22) percent package license has been issued to sale of intoxicating liquor containing no more than a specified percentage of alcohol by weight or volume;

5. Prohibiting the sale of any intoxicating liquor upon a premises for which a five (5) percent drink license, a five (5) percent drink picnic license or a five (5) percent package license has been issued and, instead, allowing only the sale of nonintoxicating beer upon such premises;

6. Reasonable conditions relating to security of the licensed premises and its patrons;

7. Requirements pertaining to checking the identification of persons wishing to gain entry into the licensed premises;

8. Requiring that the licensed premises be posted against minors;

9. Requiring landscaping or fencing of the licensed premises;

10. Requirements related to control of litter or noise, including, but not limited to, requirements relative to maintenance of trash containers;

11. Requirements related to exterior lighting on or about the licensed premises; and

12. Such other terms or conditions which, due to the character of the neighborhood or of the licensed premises or proposed licensed premises, would be reasonable and appropriate.

D. When there is authorization to impose one (1) or more of the terms and conditions provided for in subsection C of this section, he shall have discretion to impose such terms and conditions on either a temporary or permanent basis. When there has been imposed terms or conditions on a temporary basis, upon expiration of the period for which the term or condition is imposed, he may, upon his own motion, call a hearing to determine whether the condition which led to imposition of such term or condition has been abated. If a hearing has been called, there shall be compliance with the notice provisions contained in Subsection B of Section 14.08.060. However, all notices required for such hearing shall specify that the hearing has been called to consider whether to extend the period during which the term or condition in question will remain in force. The procedure established by subsection C of Section 14.08.060 shall apply to hearings held pursuant to this subsection.

E. It shall be a violation of this chapter and title for a licensee or for one (1) or more of his servants, agents or employees to fail to comply with any term or condition imposed, pursuant to the provisions of this section, upon the license issued to said licensee.

14.02.060 Oath and bond.

Before entering upon the discharge of his duties, the Excise Commissioner shall take and subscribe to an oath to support the Constitution of the United States and of this state, and faithfully demean himself in office, and shall also execute a bond to the City, at the City's expense, in the penal sum of twenty-five thousand dollars ($25,000.00).

(Ord. No. 71819, § 3, 4-16-2024.)

14.02.070 Interest in places manufacturing or selling intoxicating liquor or nonintoxicating beer.

Neither the Excise Commissioner nor any of his subordinates or employees shall have any interest, directly or indirectly, either proprietary or by means of

any loan, mortgage, or other lien, either for his or their own benefit or in a fiduciary capacity, or in any other manner, in or on any premises where intoxicating liquor or nonintoxicating beer is distilled, brewed, manufactured or sold; nor shall he or they have any interest, directly or indirectly, in any business wholly or in part devoted to the distilling, brewing, manufacture or sale of intoxicating liquor or nonintoxicating beer, nor shall he or they, directly or indirectly, engage in dealing in or distilling, brewing, manufacturing or selling intoxicating liquor or nonintoxicating beer either as owner, part owner, partner, member of a syndicate, shareholder of a corporation, agent or employee either for his or their benefit, or in a fiduciary capacity.
(Ord. No. 71819, § 3, 4-16-2024.)

14.02.080 Reports to state supervisor.

The Excise Commissioner shall make a report to the state supervisor of the Missouri Division of Alcohol and Tobacco of all licenses revoked, canceled, suspended, or fined.
(Ord. No. 71819, § 3, 4-16-2024.)

14.02.090 Reports to the Mayor.

The Excise Commissioner shall make a report to the Mayor of all licenses revoked, canceled, suspended, or fined and the race and gender of each liquor license applicant paired with the disposition of their license.
(Ord. No. 71819, § 3, 4-16-2024.)

14.02.100 Neglect of duty—Removal from office.

If the Excise Commissioner or any of his employees or agents shall fail to perform any of the duties imposed on him or them by this code, he or they may be removed from office by the appointing officer according to the rules, regulations and ordinances of the City.
(Ord. No. 71819, § 3, 4-16-2024.)

Chapter 14.03

GENERAL REGULATIONS

Editor's Note:

Ord. No. 71819, § 4, approved April 16, 2024, amended the Code by repealing former Ch. 14.03, §§ 14.03.010—14.03.230, and adding a new Ch. 14.03. Former 14.03 pertained to similar subject matter, and derived from Ord. No. 68527, approved December 4, 2009; Ord. No. 68536, approved 12-15-2009; Ord. No. 68786, approved November 8, 2010; Ord. No. 69010, approved November 4, 2011; and Ord. No. 69102, approved March 9, 2012.

Sections:

14.03.010	**Police responsible for enforcement.**
14.03.015	**Notice of violations to license holder.**
14.03.020	**Responsibility of licensees.**
14.03.022	**Cleanness of establishment.**
14.03.030	**Hours of operation—Daily.**
14.03.040	**Hours of operation—Sunday—Intoxicating liquor.**
14.03.052	**Sunday package liquor permit and hours of operation.**
14.03.055	**Persons other than licensees, employees of liquor licensee, contractors and entertainers not to be on licensed premises during hours when licensee is prohibited from selling liquor.**
14.03.060	**Display of license and permits.**
14.03.070	**Package liquor stores—Required display of placard.**
14.03.080	**Prohibited displays.**
14.03.090	**Accessibility of premises.**
14.03.095	**Inspection and seizing of evidence.**
14.03.100	**Minimum quantity in original package—Beer.**
14.03.110	**Minimum quantity in original package—Liquor other than beer.**
14.03.130	**Liquor prohibited—On five (5) percent retail premises.**
14.03.140	**Liquor over twenty-two (22) percent prohibited on twenty-two (22) percent retail premises.**
14.03.150	**Special restrictions on boats.**
14.03.160	**Taverns open to public view.**
14.03.170	**Retailers not to purchase from other than wholesaler.**
14.03.180	**Payment for deliveries.**
14.03.190	**Storage of intoxicating liquor and nonintoxicating beer.**
14.03.200	**Records and reports.**
14.03.210	**Changes in premises.**
14.03.230	**Convention trade area exceptions.**

14.03.010 Police responsible for enforcement.

The police department shall see that the provisions of this title in regard to the sale of intoxicating liquor and nonintoxicating beer at retail are obeyed. The po-

lice shall forward to the Excise Commissioner all reports concerning or relating to activities or disturbances at licensed premises.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.015 Notice of violations to license holder.

A. To ensure the continued application of the intent and purpose of this the Division of Excise shall notify the license holder of all instances in which nuisance behavior results in a citation for a code violation or other legal infraction at the premises to which the license is applicable.

B. The Division of Excise shall maintain a record of all code violations or other legal infractions at or relating to the premises which are the subject of the applicable license. In this situation, a license holder shall be afforded an opportunity to appeal to the Excise Commissioner and rectify violations.

C. The Division of Excise shall cause to have published to a City of St. Louis website a list of finally determined violations of this title.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.020 Responsibility of licensees.

All persons licensed under the provisions of this title are always and at all times responsible for the conduct of their licensed premises and for the conduct of their employees, servants, and agents while on their licensed premises.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.022 Cleanness of establishment.

A liquor licensed establishment shall keep its premises clean and sanitary and the licensed establishment shall comply with all City of St. Louis Health and Building Code provisions and regulations.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.030 Hours of operation—Daily.

A. Except as otherwise provided under this chapter and title, no person to whom a license has been issued pursuant to the provisions of this chapter or title, his agent, servant or employee shall sell, give away, or otherwise dispose of on the premises for which such license has been issued, or suffer or permit the same to be done upon said license premises, or allow to be consumed on the licensed premises or any part of the premises used by the licensee in connection with the conduct of his business upon the licensed premises, any intoxicating liquor or nonintoxicating beer in any quantity between the hours of 1:30 a.m. and 6:00 a.m. Tuesday through Saturday or between the hours of 1:30 a.m. Sunday and 6:00 a.m. the following Monday.

B. No person to whom a C.O.L. license has been issued shall permit consumption of intoxicating liquor or nonintoxicating beer upon his licensed premises between the hours of 1:30 a.m. and 6:00 a.m. Tuesday through Saturday and between 12:00 Saturday and 6:00 a.m. the following Monday.

C. No person holding a "3:00 a.m. closing permit," his agent, servant or employee, shall sell, give away or otherwise dispose of, or suffer or permit the same to be done upon his licensed premises, or allow to be consumed on the licensed premises or any part of the premises used by the licensee in connection with the conduct of his business upon the licensed premises, any intoxicating liquor or nonintoxicating beer in any quantity between the hours of 3:00 a.m. and 6:00 a.m. Tuesday through Saturday or between the hours of 3:00 a.m. Sunday and 6:00 a.m. the following Monday.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.040 Hours of operation—Sunday—Intoxicating liquor.

A. When January 1, March 17, July 4, or December 31 falls on a Sunday, and on the Sundays prior to Memorial Day and Labor Day and on the Sunday on which the national championship game of the national football league is played, commonly known as "Super Bowl Sunday", intoxicating liquor by the drink may be sold under the provisions of the license on that Sunday from the time and until the time which would be lawful on another day of the week.

B. Persons possessing a "full drink Sunday intoxicating liquor license" may sell intoxicating liquor by the drink for consumption on the premises between the hours of 9:00 a.m. Sunday and midnight Sunday. And if you posses a "3:00 a.m. closing permit" may sell intoxicating liquor by the drink for consumption on the premises between the hours of 8:00 a.m. Sunday and midnight Sunday.

C. When December 31 falls on a Sunday, the holder of a "3:00 a.m. closing Permit" may sell intoxicating liquor until 3:00 a.m. on the following Monday.

D. When the holder of a "3:00 a.m. closing permit" possesses a "full drink Sunday intoxicating liquor license," he may sell intoxicating liquor by the drink for consumption on the premises until 3:00 a.m. the following Monday.

E. Any person possessing a license to sell intoxicating liquor in the original package at retail may sell intoxicating liquor in the original package at retail between the hours of 9:00 a.m. and midnight on Sundays. Upon receiving a copy of the Missouri Division of Alcohol and Tobacco Sunday package license, the Excise Commissioner shall issue a Sunday original package sales permit to said licensee.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.052 Sunday package liquor permit and hours of operation.

Any licensee licensed under the provisions of this title to sell intoxicating liquor and nonintoxicating beer in the original package may apply for a Sunday original package sales permit to sell intoxicating liquor and nonintoxicating beer in the original package between the hours of 9:00 a.m. and midnight on Sundays.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.055 Persons other than licensees, employees of liquor licensee, contractors and entertainers not to be on licensed premises during hours when licensee is prohibited from selling liquor.

It shall be a violation for any person to whom a retail drink license has been issued, his agents, servants or employees to allow any person to be inside the liquor licensed premises during the hours when the sale of intoxicating liquor and nonintoxicating beer on said premises is prohibited, except that employees and/or contractors of a liquor licensee and entertainers who have been performing at said premises may remain thereon, solely for the purpose of cleaning, restocking, packing up, and/or other business related purposes. Further, the licensee, his employees, agents, servants, contractors, and/or entertainers who will be performing on the licensed premises may be present on the licensed premises prior to the lawful opening time for business related purposes.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.060 Display of license and permits.

All licenses and permits issued pursuant to the provisions of this title shall be posted and displayed conspicuously on the premises so that any person visiting the premises may readily see the license for the premises. A licensee shall post conspicuously on the premises, at all times, all City of St. Louis and State of Missouri licenses, occupancy permits, health permit, dance hall license, coin operating machine stamps and Fire Marshal inspection, if applicable.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.070 Package liquor stores—Required display of placard.

All persons possessing a package liquor license shall be required to post on the inside of the premises for which such license has been issued, within five (5) feet of each door used by the public to enter or exit said premises, a sign with the following wording printed thereon: "City Ordinances Prohibit Consumption of Alcoholic Beverages on Any Street, Sidewalk, Parking Lot or Alley in the City. Violations of This Ordinance Are Punishable by a Fine of Up to $500.00 and/or Imprisonment for Not More than Ninety Days." Such sign shall be of a minimum size of eight and one half (8½) inches by eleven and one half (11½) inches, with letters at least three-quarters (¾) of an inch high.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.080 Prohibited displays.

No person shall display in any street window or show window any intoxicating liquor or nonintoxicating beer or any package, bottle, or container bearing the label or brand of any intoxicating liquor or nonintoxicating beer.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.090 Accessibility of premises.

At all times while persons other than the licensee or employees of the licensee are on premises licensed under the provisions of this chapter and title, such premises shall be accessible to law enforcement and liquor inspection personnel and the premises shall not be locked nor shall the entrance to the premises be blocked or impeded or made inaccessible in any manner; provided, that this provision shall not apply to boats while arriving, departing or making headway up or down stream. In the case of boats, not in the course of arriving or departing, or not in the course of making headway up or down stream, the requirement for accessibility shall be deemed to be met only when the craft can be boarded directly from shore by means of a gangplank or equivalent means.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.095 Inspection and seizing of evidence.

All licensees shall allow the licensed premises and all portions of the building and premises, including all

rooms, cellars, outbuildings, passageways, closets, vaults, yards, attics and all buildings used in connection with the operations carried on under the license and which are in the possession or control of the licensee and all places where liquor is stored, to be inspected by the Excise Commissioner and/or his agents and law enforcement authorities. The Excise Commissioner, his deputies, and law enforcement authorities may seize any and all objects which may appear to be in violation of any provisions of this ordinance and retain said objects as evidence until any matter pertaining thereto is finally adjudicated.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.100 Minimum quantity in original package—Beer.

No person licensed under the provisions of this chapter or title, his agent, servant or employee, shall sell less than three (3) standard twelve-ounce or less bottles, cans or containers of intoxicating malt liquor or nonintoxicating beer, except for kegs and barrels, to any person at retail in the original package where such intoxicating malt liquor or nonintoxicating beer is not to be consumed on the premises where sold, provided that a licensee, his agent, servant or employee shall be permitted to sell a single aluminum can if it has a liquid content of sixteen (16) ounces or more. A licensee, his agent, servant or employee may sell at retail a single glass bottle or container of intoxicating malt liquor or nonintoxicating beer if it has a liquid content of thirty-two (32) ounces or more at room temperature only.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.110 Minimum quantity in original package—Liquor other than beer.

No person licensed under the provisions of this chapter or title, his agent, servant or employee shall sell intoxicating liquor at retail in the original package to be consumed off of the premises where sold, in any container with a liquid content of less than fifty-one (51) milliliters in a quantity of less than six (6) bottles or containers.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.130 Liquor prohibited—On five (5) percent retail premises.

No person possessing a five (5) percent drink license or a five (5) percent package license issued under the provisions of this chapter or title, his agent, servant or employee shall have, keep or secrete, or suffer or permit any alcoholic beverages with an alcoholic content in excess of one half of one (0.5) percent by volume other than malt liquor or nonintoxicating beer to be on or about his licensed premises.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.140 Liquor over twenty-two (22) percent prohibited on twenty-two (22) percent retail premises.

No person licensed under the provisions of this chapter and title for the sale at retail of intoxicating liquor not in excess of twenty-two (22) percent alcohol by weight, his agent, servant, or employee shall have, keep or secrete, or suffer or permit any alcoholic beverages with an alcoholic content in excess of twenty-two (22) percent alcohol by weight to be on or about his licensed premises.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.150 Special restrictions on boats.

Licensees of boats and barges licensed under the provisions of this chapter or title, their agents, servants or employees, shall not sell, give away, or otherwise dispose of, or permit the consumption of, upon or about their licensed premises, any intoxicating liquor or nonintoxicating beer while docked at any location other than the one for which a license was issued.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.160 Taverns open to public view.

A. Except in cases of hotels, restaurants, clubs, bowling alleys with five (5) or more standard size lanes equipped and ready to use, boats on the river, racquet ball facilities containing five (5) or more courts equipped and ready for use and other licensed premises permitted by the Excise Commissioner, every premises for which either a drink or C.O.L. license has been issued under provisions of this chapter or title, shall be so arranged, situated and equipped so that a clear view of the interior can be had from the sidewalk. No such premises shall have any objects or signs in front of, on, or behind their windows which prevent a view of the interior from the sidewalk, nor shall any such premises use any jalousie windows, vertical blinds, tinted glass, tilted glass, neon signs, or any other devices or lighting methods in a manner such that a view of the interior from the sidewalk is obscured. Such premises shall have interior lighting of sufficient intensity to permit a view of the patrons and of the interior from the sidewalk. A single room, with a single street number located on the

ground floor shall be deemed to have an adequate size window opening for the requirements of this section if it has clear glass opening at least three (3) feet high by five (5) feet wide with the bottom edge not over forty-two (42) inches above the sidewalk. Venetian blinds may be used on front windows; however, the slats must be horizontal at all times and the blinds must be raised between sunset and sunrise. Drapes may be used to frame a front window, but drapes, if used, shall be permanently fastened so that they cannot be drawn together. No such premises shall have any enclosed tables or booths, or any tables enclosed in private rooms or concealed in any manner.

B. Provided that when compliance with the provisions of this section would entail substantial structural alteration and when, in addition, the premises have been licensed in the past for sale of liquor by the drink or for consumption of liquor thereon the Excise Commissioner shall have the authority to approve exceptions to this section if he is satisfied that the premises will be operated in an orderly manner. The Excise Commissioner shall have authority to waive compliance with any requirement of this section that a view of the interior be had from the sidewalk for premises located within areas formally declared as historic districts by municipal, state, or federal action if he is satisfied that the premises will be operated in an orderly manner. The Excise Commissioner shall also have authority to waive visibility requirements in the case of public buildings, public parks, amusement parks, sports parks, stadiums, arenas, places of entertainment, theaters and meeting places of church, fraternal, benevolent, labor or veterans' organizations if he is satisfied that the premises will be operated in an orderly manner.

C. Unless authorized by the Excise Commissioner, in no instance shall any person holding a drink license or a C.O.L. license issued under the provisions of this chapter or title be permitted to add a room or rooms above or below the area licensed to him for service of customers to be operated in conjunction with his licensed premises, and to be used by patrons for purposes other than restrooms; nor shall a new license be issued for premises on an upper floor the interior of which is not visible from the sidewalk; nor shall any such aforementioned licensee be permitted to obstruct or impede visibility into his licensed premises unless such premises are operated as a hotel, restaurant, club, bowling alley with five (5) or more standard size lanes equipped and ready for use, boat on the river, racquet ball facility containing five (5) or more courts equipped and ready for use, or such premises as otherwise specifically excepted under the provisions of this chapter or title.

(Ord. No. 71819, § 4, 4-16-2024.)

14.03.170 Retailers not to purchase from other than wholesaler.

No person to whom a drink or package license has been issued under the provisions of this chapter or title shall possess, purchase, borrow, or obtain in any other manner any intoxicating liquor or nonintoxicating beer for resale on his licensed premises, from any source other than a licensed wholesaler or manufacturer.

(Ord. No. 71819, § 4, 4-16-2024.)

14.03.180 Payment for deliveries.

No person to whom a drink or package license has been issued under the provisions of this chapter or title who accepts delivery of beer or liquor at premises located within the City, shall make payment for beer or liquor with United States currency at said location. However, payment with United States currency shall be lawful and proper at the wholesale vendor's place of business.

(Ord. No. 71819, § 4, 4-16-2024.)

14.03.190 Storage of intoxicating liquor and nonintoxicating beer.

Every person who shall keep or store any intoxicating liquor or nonintoxicating beer in any warehouse or other storage place in the city shall maintain complete and accurate records concerning the kind and quantity of the intoxicating liquor or nonintoxicating beer, the name and address of the owner thereof, and the name and address of the person to whom the intoxicating liquor or nonintoxicating beer has been delivered. Such records shall be retained for a minimum period of one (1) year from the date that any intoxicating liquor or nonintoxicating beer is removed from the warehouse or storage place. Such records shall be immediately presented to any employee of the Excise Division appearing upon the licensed premises and making a request therefore. No person licensed under the provisions of this title shall store any intoxicating liquor or nonintoxicating beer at any location other than his licensed premises unless he shall first obtain the written approval of the Excise Commissioner.

(Ord. No. 71819, § 4, 4-16-2024.)

14.03.200 Records and reports.

All persons licensed under the provisions of this chapter or title are required to keep complete and accurate records of their licensed business on the premises for a period of two (2) years. All records shall include a complete and accurate record of all purchases and sales of intoxicating liquor and nonintoxicating beer made by them. These records must include the names and addresses of all persons from whom the liquor is purchased, the dates, kinds and quantities of the purchases and the dates and amounts of payments on account and it must also include the daily gross returns from the sales. All records, except specific salaries of officers and directors shall be immediately presented to any employee of the Excise Division appearing upon the licensed premises and making a request therefore. The Excise Commissioner may also require, at his option, that such records be presented to his office. Any person licensed under the provisions of this chapter and title shall, upon the written request of the Excise Commissioner, submit to the Excise Commissioner any reports deemed necessary by him in the discharge of his duties. All records, invoices, reports etc. are required to be kept and preserved by law and/or at the discretion of the Excise Commissioner for a period of two (2) years from the date the record was made.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.210 Changes in premises.

No person licensed under the provisions of this chapter or title for the retail sale or consumption of intoxicating liquor or nonintoxicating beer shall cause or permit any material structural changes to be made to his licensed premises; nor shall he cause or permit any walls, partitions, rooms, doors or windows to be added or removed from the licensed premises without first obtaining the written consent of the Excise Commissioner and without also obtaining permits and inspections as are required by other agencies of the City. For purposes of this section "material" means any structural change which either: (a) adds more than five thousand (5,000) square feet to the premises; (b) adds a new area for the service of intoxicating liquor or nonintoxicating beer; or (c) involves a total construction cost greater than fifty thousand dollars ($50,000) including labor and materials.
(Ord. No. 71819, § 4, 4-16-2024.)

14.03.230 Convention trade area exceptions.

The following area shall not be within the convention trade area of the City of St. Louis:

A. Beginning at the intersection of the center lines of Missouri Pacific Railroad tracks and Delor St., proceeding in a generally clockwise direction along the center lines west to Newport Ave., south to Walsh St., west to Morganford Rd., north to Gravois Ave., south to Eichelberger St., west to Kingshighway Blvd., north to Walsh St., west to Macklind Aves., north to Chippewa St., east to Kingshighway Blvd., north to Tholozon Ave., east to Morganford Rd., south to Meramec St., southeast to Chippewa St., east to Missouri Pacific Railroad tracks and southeast to the point of the beginning.

B. Beginning at the intersection of the Mississippi River and the centerline of River Bluff Place and proceeding along the center lines in a generally clockwise direction west to S. Broadway, southwest to Nebraska St., northwest to Delor St., west to Minnesota Ave., north to Itaska St., west to Michigan Avenue., north to Mt. Pleasant St., east to Minnesota Ave., north to Meramec St., east to Pennsylvania Ave., north to Gasconade St., east to California Ave., north to Osage St., west to Oregon Ave., north to Chippewa St., east to California Ave., south to Keokuk St., east to Ohio Ave., north to Chippewa St., east to S. Jefferson Ave., south on S. Jefferson Ave. to S. Broadway, south to Keokuk St., east to Missouri Ave., north to Chippewa St., east to Marine Ave., north to Winnebago St., east to Kosciusko St., south to Interstate 55, north to S. Broadway, southwest to Potomac St., southeast to S. Second St., south to President St., northwest to Cleon St., southwest to Miami St., west to Salena St., north to S. Broadway, southwest to Miami St., west to Indiana Ave., north to Potomac St., west to Ohio Ave., south to Miami St., west to Iowa Ave., north to Cherokee St., east to Ohio Ave., north to Utah St., east to Texas Ave., north to Wyoming St., west to California Ave., north to Juniata St., west to Oregon Ave., south to Wyoming St., west to Nebraska Ave., south to Cherokee St., west to Pennsylvania Ave., north to Utah St., west to Minnesota Ave., north to Juniata St., west to Gravois Ave., southwest to Compton Ave., south to Utah St., west to Virginia Ave., north to Gravois Ave., southwest to Utah St., west to Louisiana Ave., north to Hartford St., east to Compton Ave., north to Arsenal St., east to Gravois Ave., northeast to Sidney St., east to S. 7th St., north to

Barton St., east on Barton St. and the prolongation of Barton St. to the Mississippi River and southwest along the Mississippi River to the point of the beginning.

C. Beginning at the intersection of the center lines of S. Broadway and Interstate 55, and proceeding along the center lines in a generally clockwise direction south to Kosciusko St., north to Winnebago St., west to Marine Ave., south to Chippewa St., west to Missouri Ave., south to Keokuk St., west to S. Broadway, north on S. Broadway to Jefferson Ave., north to Chippewa St., west to Ohio Ave., south to Keokuk St., west to California Ave., north to Chippewa St., west to Oregon Ave., south to Osage St., east to California Ave., south to Gasconade St., west to Pennsylvania Ave., south to Meramec St., west to Michigan Ave., north to Gasconade St., west to Louisiana Ave., north to Osage St., west to S. Grand Blvd., north to Alberta St., east to Arkansas Ave., north to Chippewa St., east to Tennessee Ave., north to Potomac St., east to Louisiana Ave., north to Gravois Ave., east to Virginia Ave., south to Utah St., east to Compton Ave., north to Gravois Ave., northeast to Juniata St., east to Minnesota Ave., south to Utah St., east to Pennsylvania Ave., south to Cherokee St., east to Nebraska Ave., north to Wyoming St., east to Oregon Ave., north to Juniata St., east to California Ave., south to Wyoming St., east to Texas Ave., south to Utah St., west to Ohio Ave., south to Cherokee St., west to Iowa Ave., south to Miami St., east to Ohio St., north to Potomac St., east to Indiana Ave., south to Miami St., east to S. Broadway, northeast to Salena St., south to Miami St., east to Cleon St., northeast to President St., southeast to Second St., northeast to Potomac St., northwest to S. Broadway St., northeast to the point of beginning.
(Ord. No. 71819, § 4, 4-16-2024.)

Chapter 14.04

REGULATIONS RELATING TO MINORS

Editor's Note:

Ord. No. 71819, § 5, approved April 16, 2024, amended the Code by repealing former Ch. 14.04, §§ 14.04.010—14.04.100, and adding a new Ch. 14.04. Former 14.04 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009.

Sections:

14.04.010 Minors—Sale of liquor or beer.

14.04.015 Minors—Consuming on licensed premises.

14.04.020 Minors—Selling or delivering—Prohibited.

14.04.030 Minors—Selling or delivering—Exception.

14.04.040 Minors—Exceptions for waiters and waitresses.

14.04.050 Minors—Employees of distilleries and warehouses.

14.04.060 Minors—Employing on premises for which a license has been issued—Sale of commodities other than alcohol.

14.04.070 Minors—Employing—For entertainment.

14.04.080 Minors—Solicitation of another to purchase liquor or beer—Use of false identification.

14.04.090 Minors—On posted premises.

14.04.100 Posting premises.

14.04.010 Minors—Sale of liquor or beer.

No person to whom a retail license has been issued under the provisions of this chapter or title, his agent, servant, or employee shall sell, give away or dispose of any intoxicating liquor, nonintoxicating beer, or any beverage having an alcoholic content in excess of one-half of one (0.5) percent alcohol by volume, to any person under the age of twenty-one (21) or permit the same to be done on or about his licensed premises.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.015 Minors—Consuming on licensed premises.

No licensee, his agent, servant, or employee shall permit a person under the age of twenty-one (21) to consume any intoxicating liquor, nonintoxicating beer, or any beverage having an alcoholic content in excess of one-half of one (0.5) percent alcohol by volume upon or about his licensed premises.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.020 Minors—Selling or delivering—Prohibited.

Except as provided in Sections 14.04.030 and 14.04.040, no person possessing a retail license issued pursuant to the provisions of this chapter or title, his agent, servant or employee shall employ or otherwise suffer or permit any person under the age of twenty-one (21) to sell, attempt to sell, deliver, attempt to deliver, or in any way dispose of intoxicating liquor or

nonintoxicating beer, or any beverage having an alcoholic content in excess of one-half of one (0.5) percent by volume.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.030 Minors—Selling or delivering—Exception.

On any premises for which a package license has been issued under the provisions of this chapter or title where at least fifty (50) percent of the gross sales made consists of goods, merchandise, or commodities other than intoxicating liquor or nonintoxicating beer in the original package, persons at least eighteen (18) years of age may stock, arrange, display, accept payment for and sack for carry out intoxicating liquor or nonintoxicating beer. Delivery of intoxicating liquor or nonintoxicating beer away from the licensed business premises cannot be performed by anyone under the age of twenty-one (21) years.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.040 Minors—Exceptions for waiters and waitresses.

Persons eighteen (18) years of age or older may, when acting in the capacity as a waiter or waitress, accept payment for or serve intoxicating liquor in a place of business which sells food for consumption on the premises if at least fifty (50) percent of the gross revenue of the place of business is derived from sale of food; provided that nothing in this section shall authorize persons under twenty-one (21) years of age to mix or serve across the bar intoxicating beverages. As used in this section, the term "serve across the bar" includes, but is not limited to, the pouring of intoxicating liquor, other than beer, malt liquor or wine, from the original container into a glass or other container and the operation of a spigot attached or connected to a keg or barrel.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.050 Minors—Employees of distilleries and warehouses.

In any distillery, warehouse, wholesale distributorship or similar place of business which stores or distributes intoxicating liquor or nonintoxicating beer but which does not sell intoxicating liquor or nonintoxicating beer at retail, persons at least eighteen (18) years of age may be employed and their duties may include the handling of intoxicating liquor or nonintoxicating beer for all purposes except consumption, sale at retail, or dispensing for consumption or sale at retail.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.060 Minors—Employing on premises for which a license has been issued—Sale of commodities other than alcohol.

Except as permitted by either Sections 14.04.030 or 14.04.040, no person to whom a retail license has been issued under the provisions of this chapter or title, his agent, servant or employee, shall employ or otherwise suffer or permit any person under the age of twenty-one (21) to sell or assist in the sale of any merchandise or commodity or title upon the licensed premises, except that persons under the age of twenty-one (21) may be employed to sell or assist in the sale of merchandise or commodities other than intoxicating liquor or nonintoxicating beer: (A) by restaurants and concession stands where the greater volume of gross revenue is derived from the sale of merchandise or commodities other than intoxicating liquor or nonintoxicating beer; or (B) by hotels, motels, auditoriums, arenas, sports stadiums, public parks, buildings, bowling alleys, excursion boats, churches, charitable organizations, and other businesses for which the sale of intoxicating liquor and nonintoxicating beer is merely incidental to the business conducted on the licensed premises.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.070 Minors—Employing—For entertainment.

A. No person holding a retail license issued under the provisions of this chapter or title, his agents, servants or employees shall employ or suffer or permit any person under the age of twenty-one (21) to be employed in entertainment, or work in entertainment, or to be employed or work in connection with any entertainment conducted in any licensed premises.

B. However, the Excise Commissioner may, in his discretion, permit the employment of minors in entertainment in premises for which a retail license has been issued provided he is able to make the following findings:

1. The establishment is reputable;

2. Employment in entertainment in the establishment will not have an adverse effect on the minor.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.080 Minors—Solicitation of another to purchase liquor or beer—Use of false identification.

No person under the age of twenty-one (21) shall solicit, entice or encourage in any manner any person to purchase for him any intoxicating liquor or nonintoxicating beer. No minor under the age of twenty-one (21) shall use any false identification to obtain or attempt to obtain any intoxicating liquor or nonintoxicating beer. (Ord. No. 71819, § 5, 4-16-2024.)

14.04.090 Minors—On posted premises.

No person, unless accompanied by his parent, or legal guardian, or a responsible adult related to the minor by blood, marriage or adoption, shall enter, attempt to enter, or be present on premises licensed for the sale at retail of intoxicating liquor or nonintoxicating beer, where the premises are posted against the entry or presence of minors, according to the method of posting, as hereinafter described, unless the minor is legally employed on the licensed premises.
(Ord. No. 71819, § 5, 4-16-2024.)

14.04.100 Posting premises.

Persons licensed for the sale at retail or consumption of intoxicating liquor or nonintoxicating beer may post their premises to prohibit persons under the age of twenty-one (21) from entering or being present thereon according to the following procedure. A posting notice is to be affixed in a plainly visible manner to the exterior of all doors through which entry can be had to the interior of the licensed premises. The notice is to be at least eight (8) inches by eleven (11) inches in size. The posting notice is to contain the words "Warning to minors, (persons under the age of twenty-one (21) these premises are posted against your entry or presence, unless accompanied by parent, guardian, or adult relative." The letters on the sign are to be least one-half (½) inch high. The signs are to be rigidly fastened to the entrance doors by means of nails, screws, bolts or comparable holding devices. Licensees may have their premises posted only during certain hours. In these instances, licensees shall specify the days and hours during which their premises are to be posted in the previously described posting notices. Or, licensees may post only a certain room or rooms in their premises. Any room that is to be posted shall have the notice required by this section posted at all entrances to the room.
(Ord. No. 71819, § 5, 4-16-2024.)

Chapter 14.05

GENERAL VIOLATIONS

Editor's Note:

Ord. No. 71819, § 6, approved April 16, 2024, amended the Code by repealing former Ch. 14.05, §§ 14.05.010—14.05.170, and adding a new Ch. 14.05. Former 14.05 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009.

Sections:

14.05.010 Disturbing the peace—Drinking in public—Exceptions.

14.05.020 Solicitation for prostitution.

14.05.030 Solicitation—Assisting.

14.05.040 Consumption of liquor on unlicensed premises.

14.05.060 Liquor prohibited—On five (5) percent beer premises.

14.05.070 Liquor prohibited—On twenty-two (22) percent premises.

14.05.080 Disorderly place—Sale by the drink for consumption off premises.

14.05.082 Open containers leaving licensed premises.

14.05.090 Improper acts.

14.05.092 Failure to cooperate with liquor agents/law enforcement.

14.05.095 Noise level for amplified system.

14.05.098 Use of premises during suspension or closing order.

14.05.100 Sale to habitual drunkards or drunken persons.

14.05.110 Lewd or indecent conduct or entertainment prohibited.

14.05.120 Spiking prohibited.

14.05.125 Liquor refilling prohibited.

14.05.130 Drinking of alcoholic beverages and open containers on package premises—Prohibited.

14.05.140 Sale of intoxicating liquor or nonintoxicating beer to persons occupying an automobile—Prohibited.

14.05.150 Licensees required to allow public to use telephones—When.

14.05.160 Failure to obey a subpoena issued by the Excise Commissioner—Violation.

14.05.170 Interfering with a Liquor Control Officer.

14.05.010 Disturbing the peace—Drinking in public—Exceptions.

A. No person shall drink any nonintoxicating beer or intoxicating liquor in any park, public building, street, sidewalk, alley, highway, parking lot, thoroughfare, or other public place unless consumption of intoxicating liquor or nonintoxicating beer in such place has been expressly authorized in writing by the Excise Commissioner. Provided, that nothing herein contained shall be construed to prohibit the consumption of nonintoxicating beer or intoxicating liquor by working persons during mealtime near their assigned work areas, or by picnic groups in public parks, providing that the person or persons consuming beverages are not noisy, riotous or disorderly in any manner.

B. The Excise Commissioner shall have authority to extend, for not more than seven (7) days, the licensed premises of any licensee possessing a drink license in connection with a street fair, celebration, or special event. Where the Excise Commissioner has granted such an extension the prohibitions contained in subsection A of this section shall not apply within the boundaries for which the extension was granted. Nor shall the prohibitions of subsection A apply to an area for which a picnic license has been issued.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.020 Solicitation for prostitution.

No person, while on premises licensed under the provisions of this chapter or title, shall solicit any person for any sexual act in return for payment of money or anything of value.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.030 Solicitation—Assisting.

No person licensed under the provisions of this chapter or title, his agent, servant or employee shall in any manner aid, assist, encourage, abet or commit any act prohibited by Section 14.05.020 on or about the licensed premises.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.040 Consumption of liquor on unlicensed premises.

It shall be unlawful for any person operating any premises where food, beverages or entertainment are sold or provided for compensation, who does not possess a license for the sale of intoxicating liquor or nonintoxicating beer, to permit the drinking or consumption of intoxicating liquor or nonintoxicating beer, in, on or about the premises without having a C.O.L. license as provided for in this title. However, nothing in this section shall allow a person to whom a C.O.L. license has been issued to suffer or permit consumption of intoxicating liquor or nonintoxicating beer in, on or about his licensed premises between the hours of 1:30 a.m. and 6:00 a.m. Monday through Saturday or between the hours of midnight Saturday and 6:00 a.m. the following Monday. No person under the age of twenty-one (21) shall be permitted to drink or consume intoxicating liquor or nonintoxicating beer on the license premises at any time and no other person shall be permitted to drink or consume intoxicating liquor or nonintoxicating beer on the premises between the hours of 1:30 a.m. and 6:00 a.m. It is unlawful for any person holding an occupancy permit or any other person to allow the consumption of intoxicating liquor or nonintoxicating beer on any premises that is not covered by a license issued hereunder.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.060 Liquor prohibited—On five (5) percent beer premises.

No person, while on premises licensed for the retail sale of liquor, containing alcohol not in excess of five (5) percent by weight, shall have in his possession or shall consume any alcoholic beverage with an alcoholic content in excess of five (5) percent by weight.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.070 Liquor prohibited—On twenty-two (22) percent premises.

No person, while on premises licensed for the retail sale of liquor containing alcohol not in excess of twenty-two (22) percent by weight, shall have in his possession or shall consume any beverage with an alcoholic content in excess of twenty-two (22) percent by weight.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.080 Disorderly place—Sale by the drink for consumption off premises.

Whenever it shall be shown, or whenever the Excise Commissioner has knowledge that a licensed premise under this chapter or title has not at all times kept an orderly place or kept it in an orderly manner, or has violated any of the provisions of this chapter or title, the Excise Commissioner may impose an administra-

tive fine of five hundred dollars ($500.00) per violation, revoke, cancel and/or suspend the license of the licensee, or any combination thereof.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.082 Open containers leaving licensed premises.

A. *Open containers prohibited.* Whenever it shall be shown, or whenever the Excise Commissioner has knowledge that the licensee, servant, employee or agent has allowed a patron to remove an open container of intoxicating liquor or nonintoxicating beer from the licensed premises, the Excise Commissioner may impose an administrative fine of five hundred dollars ($500.00) per violation, revoke, cancel and/or suspend the license of the licensee, or any combination thereof.

B. *Exception to open container prohibition.*

1. Notwithstanding any other provision of law, it shall not be unlawful for the owner, operator, or employees of a restaurant bar, to allow patrons to carry out one (1) or more bottles of unfinished wine, nor shall it be unlawful for patrons of such restaurant bar to carry out one (1) or more bottles of unfinished wine under the following conditions:

(a) The patron must have ordered a meal;

(b) The bottle or bottles of wine must have been at least partially consumed during the meal;

(c) The restaurant bar must provide a dated receipt for the unfinished bottle or bottles of wine; and (d) The restaurant bar must securely reseal the bottle or bottles of wine and place them in one (1) or more one-time-use, tamperproof, transparent bags and securely seal the bags.

2. Notwithstanding any other provision of law, no person who transports one (1) or more bottles of unfinished wine which came from a restaurant bar under the circumstances described in subsection 1 of this section, in a vehicle, shall be considered to have violated any local ordinance regarding open containers in vehicles so long as such person has in his or her possession the dated receipt from the restaurant bar and the bottle or bottles of wine remain in the restaurant bar-furnished, one-time-use, tamperproof, transparent bags with the seals intact.

3. Notwithstanding any other provision of law, it shall be lawful for the owner, operator, or employees of a winery to allow patrons to carry out one (1) or more bottles of unfinished wine and it shall be lawful for patrons of such winery to carry out one (1) or more bottles of unfinished wine under the following conditions:

(a) The bottle or bottles of wine must have been at least partially consumed at the winery;

(b) The winery must provide a dated receipt for the unfinished bottle or bottles of wine; and

(c) The winery must securely reseal the bottle or bottles of wine and place them in one (1) or more one-time-use, tamperproof, transparent bags and securely seal the bags.

4. Notwithstanding any other provision of law, no person who transports one (1) or more bottles of unfinished wine which came from a winery under the circumstances described under subsection 3 of this section shall be considered to have violated any state law or local ordinance regarding open containers in vehicles so long as such person has in his or her possession the dated receipt from the winery and the bottle or bottles of wine remain in the winery-furnished, one-time-use, tamperproof, transparent bags with the seals intact.

5. As used in this section "winery" means any establishment at which wine is made.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.090 Improper acts.

It shall be the duty of any person licensed under the provisions of this chapter or title and of his servants, agents and employees to prevent or immediately suppress any violent quarrel, disorder, brawl, fight or other improper or unlawful conduct of any person upon the licensed premises. In the event that a licensee, or any of his servants, agents or employees knows or should have known that an illegal or violent act has been committed or is about to be committed on or about the licensed premises, it shall be a violation for them not to immediately report the same to the police department, state liquor control department and the Excise Commissioner.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.092 Failure to cooperate with liquor agents/law enforcement.

It shall be a violation for a licensee, his agents, servant or employees not to cooperate with the Excise Division agents, law enforcement authorities and the Missouri Division of Alcohol and Tobacco Agents during the course of any investigation of a violation of any law, regulation or order. The Excise Commissioner

may impose an administrative fine of five hundred dollars ($500.00) per violation, revoke, cancel and/or suspend the license of the licensee, or any combination thereof.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.095 Noise level for amplified system.

No licensee, servant, employee shall violate or allow the violation of the stricter of (1) any general noise ordinance or (2) shall operate, play, or permit the operation of any public speaking system, transmitter, sound device or any other device, mechanical or electrical to emit and direct music, spoken words, sounds or noise of any kind exceeding eight-six (86) decibels on an A-weighted scale when measured across property lines fifty (50) feet or more from the root of the noise or from the inside or outside of the permitted premises to the sidewalks, streets or areas abutting the licensed premises between the hours of 11:00 p.m. and 11:00 a.m.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.098 Use of premises during suspension or closing order.

It shall be a violation for a licensee, servant, employee or agent to advertise, display, sell, or offer for sale or allow consumption of intoxicating liquor or nonintoxicating liquor on premises during the time that any license or permit has been suspended, revoked or during a closing order. All drink establishments that are not a restaurant must close during their suspension or closing order. The Excise Commissioner may revoke the license upon a violation of this section.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.100 Sale to habitual drunkards or drunken persons.

No person licensed under the provisions of this chapter or title, his agent, servant or employee, shall sell or supply intoxicating liquor or nonintoxicating beer, or permit the same to be sold or supplied, on or about the licensed premises, to a habitual drunkard or to any person who is under, or apparently under, the influence of intoxicating liquor, or nonintoxicating beer.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.110 Lewd or indecent conduct or entertainment prohibited.

No person licensed under the provisions of this chapter or title, his agent, servant or employee shall suffer or permit any disorderly, lewd or indecent conduct on his licensed premises. Nor shall any person licensed under the provisions of this chapter or title, his agent, servant or employee, suffer or permit the exhibition of any motion picture or any form of video display which contains, portrays, or depicts any act defined in Section 14.01.170 as lewd or indecent conduct.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.120 Spiking prohibited.

No person possessing a license under this chapter or title, his agent, servant or employee shall suffer or permit any person while on his licensed premises to pour into, mix with, or add to any beverage, any alcohol or other liquid, or any alcohol cubes, or other ingredients that will increase or tend to increase the alcoholic content of the beverage.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.125 Liquor refilling prohibited.

No person licensed under this chapter or title, his agent, servant or employee may bottle or refill any intoxicating liquor from any barrel, bottle or other container.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.130 Drinking of alcoholic beverages and open containers on package premises—Prohibited.

No person to whom a package license has been issued pursuant to the provisions of this chapter or title, his agent, servant or employee shall suffer or permit any alcoholic beverages with an alcoholic content in excess of one-half of one (0.5) percent alcohol by volume to be consumed on his licensed premises. Nor shall a package licensee, his agent, servant or employee suffer or permit any alcoholic beverages with an alcoholic content in excess of one-half of one (0.5) percent alcohol by volume to be on or about his licensed premises, except such beverages as shall be contained in the original, unopened container, with an unbroken seal thereon. No person shall consume any beverage containing alcohol in excess of one-half of one (0.5) percent by volume on a premises for which a package license has been issued.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.140 Sale of intoxicating liquor or nonintoxicating beer to persons occupying an automobile—Prohibited.

It shall be unlawful for any person to whom a retail license has been issued under this chapter or title or for

his agents, servants or employees to sell or otherwise dispose of intoxicating liquor or nonintoxicating beer to any person through a drive-up window or to suffer or permit intoxicating liquor or nonintoxicating beer to be sold or otherwise be disposed of through a drive-up window. Nor shall a licensee, his agents, servants or employees sell or otherwise dispose of intoxicating liquor or nonintoxicating beer to any person while such person is inside of a motor vehicle, or suffer or permit the same to be done on or about his licensed premises.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.150 Licensees required to allow public to use telephones—When.

It shall be a violation for any person to whom a retail license has been issued under the provisions of this chapter or title, or for any agent, employee or servant of such licensee, to deny access to a telephone to any person wishing to place a local telephone call to the police department or other law enforcement agency, fire department, emergency medical service, ambulance or the Excise Division, whether or not such telephone is generally made available for use by the public.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.160 Failure to obey a subpoena issued by the Excise Commissioner—Violation.

The refusal of any licensee, employee, servant, agent, or any other person duly served with a subpoena to obey the subpoena issued by the Excise Commissioner is a violation of this chapter or title.
(Ord. No. 71819, § 6, 4-16-2024.)

14.05.170 Interfering with a Liquor Control Officer.

It shall be a violation of this chapter for any person to hinder, harass, obstruct or interfere with a Liquor Control Officer in the performance of his duties.
(Ord. No. 71819, § 6, 4-16-2024.)

Chapter 14.06

GENERAL LICENSING

Editor's Note:

Ord. No. 71819, § 7, approved April 16, 2024, amended the Code by repealing former Ch. 14.06, §§ 14.06.010—14.06.340, and adding a new Ch. 14.06. Former 14.06 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009; and Ord. No. 71279, approved February 1, 2021.

Sections:

14.06.010 License—Required.
14.06.015 Operating without a license—Prospective bar to license application.
14.06.020 License—Applications.
14.06.025 License—Initial license applications of restaurant bar, microbrewery, taproom brewery, or brewpub.
14.06.028 License—Additional requirements for restaurant bar initial license applications.
14.06.030 Licenses and permits—Issuance.
14.06.040 Duration.
14.06.050 Renewal of license.
14.06.060 Extension of license.
14.06.070 Separate license for each location.
14.06.075 Lost or destroyed license.
14.06.080 Manufacturers and wholesalers not to have interest in retail businesses.
14.06.090 Disposition of fees.
14.06.100 Qualifications of licensee—Natural persons.
14.06.110 Qualifications of licensee—Corporations and clubs.
14.06.120 Qualifications of licensee—Financial interests—corporations.
14.06.130 Qualifications of licensee—Partnerships.
14.06.140 Qualifications of licensee—Financial interest—Intoxicating liquor and nonintoxicating beer licenses.
14.06.150 Qualifications of licensee—Financial interest—In other drink licenses.
14.06.160 Change of ownership.
14.06.165 Change of facts.
14.06.170 Transfer of corporate stock—Of corporations listed on stock exchanges.
14.06.180 Transfer of corporate stock—All other corporations.
14.06.190 New petitions for corporations.
14.06.200 Corporate licensees required to maintain corporate status.
14.06.205 Managing officers, when, qualifications—Limitations on management agreements.

14.06.207 Change in managing officer.
14.06.210 Employees—Qualifications.
14.06.220 Employees—Fingerprinting.
14.06.225 Employee prohibition from drinking while working.
14.06.230 Persons functioning as employees.
14.06.240 Licensees to notify excise commissioner of employees.
14.06.250 Package license—Businesses enumerated.
14.06.260 Package licensee—Fee.
14.06.270 Licenses prohibited in certain places.
14.06.280 Record restrictions and zoning laws.
14.06.290 License—Revocation, cancellation, fine or suspension—general.
14.06.295 License—Emergency measures.
14.06.297 License—Jurisdictional cooperation.
14.06.300 License—Revocation, cancellation, suspension or fine—renewed licenses.
14.06.310 License—Revocation, cancellation, suspension, or fine—picnic licenses.
14.06.320 License—Revocation, cancellation, suspension, or fine—procedure.
14.06.325 Conduct of hearing and right of appeal.
14.06.330 License transfers.
14.06.340 Conduct of business upon licensed premises.

14.06.010 License—Required.

No person shall manufacture or brew or distill intoxicating liquor or nonintoxicating beer within the City or sell or offer or expose for sale within the City any intoxicating liquor or nonintoxicating beer at wholesale or retail without procuring a license as required by this chapter and title. Nor shall any person who shall import intoxicating liquor or nonintoxicating beer into the City sell or offer the same for sale without first procuring a license as required in this chapter and title. Nor shall any person operating any premises where food, nonalcoholic beverages or entertainment are sold or provided for compensation allow intoxicating liquor or nonintoxicating beer to be consumed in, on or about his premises without having first procured a license as required in this chapter and title.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.015 Operating without a license—Prospective bar to license application.

Any property owner or any other individual, entity or managing officer of any entity who operates any establishment without first acquiring the required liquor license under any provision of this title will be ineligible to apply for any liquor license pursuant to this title for three (3) years from the date of a determination by the Excise Commissioner such a disqualifying event has occurred.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.020 License—Applications.

All applications for issuance or renewal of licenses, pursuant to the provisions of this chapter or title, shall be addressed to and delivered to the Excise Commissioner together with supporting proofs as may be required by the provisions of this Code, or any rule, regulation, order or direction of the Excise Commissioner. Furthermore, applications for issuance or renewal of a license or a catering permit shall also include a statement from the Director of Revenue of the State of Missouri that the applicant has paid all sales and use taxes due, if any, including all penalties and interest. Any and all statements made and documents submitted in connection with a petition for a license, and in connection with a petition for a renewal of a license, shall be true and complete. It is the responsibility of both the licensee and the managing officer to provide the Excise Commissioner with updated valid addresses and phone numbers where they can be reached at all times. Any false statements may result in the refusal of issuance, administrative fine of five hundred dollars ($500.00), revocation, cancellation or suspension of a license, or any combination thereof.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.025 License—Initial license applications of restaurant bar, microbrewery, taproom brewery, or brewpub.

There shall be a hearing held before the Excise Commissioner to consider any initial license application submitted to the Division of Excise for any restaurant bar, microbrewery, taproom brewery, or brewpub. The Excise Commissioner shall consider factors enumerated in 14.08.040 in their initial determination to issue a license. No license shall be granted to a license applicant if property owned by the applicant is the subject of any unresolved nuisance violations or to any applicant who is delinquent on real or personal prop-

erty taxes in the City of St. Louis. An applicant for a license pursuant to 14.06.025 shall include in their application a form to be promulgated by the Excise Division requiring the applicant to affirm that the applicant has no citations for nuisance behavior for any property within the City, excluding the applicant's primary residence, that is owned by the applicant or for which the applicant is affiliated. An applicant for a license pursuant to 14.06.025 shall also affirm that the applicant is not delinquent on real or personal property taxes regarding any entity with a business license that is owned by the applicant or for which the applicant is affiliated. For purposes of this section, "affiliated" shall mean that the applicant is part of any corporation, partnership, sole proprietorship, or entity that is directly or indirectly controlled by the applicant.

Any false statements or information provided in the application are grounds to deny the application for the license, for revocation and/or the imposition of penalties, and the denial of future applications for a period of one year and any future application must follow the procedures set forth in 14.08.020. The hearing conducted by the Excise Commissioner shall be conducted as a contested case as said term is defined in Missouri Law, particularly pursuant to the Missouri Administrative Procedure Act, RSMo § 536, et seq. RSMo § 536.070 shall control the rules of evidence, objections, witnesses, judicial notice, affidavits as evidence, and the transcript requirements of the administrative hearing. Upon conclusion of any hearing, the Excise Commissioner shall issue findings of fact, conclusions of law and order ("order") setting forth the facts and law which support its determination regarding any initial license application for any restaurant bar, microbrewery, taproom brewery, or including whether the Excise Commissioner finds that the restaurant bar, microbrewery, taproom brewery, or brewpub will or will not constitute a detriment to the neighborhood.

If the Excise Commissioner makes a determination to approve the license application, such application shall serve to grant the applicant a temporary license valid for ninety (90) days from the date the microbrewery, taproom brewery, or brewpub opens and subject to one renewal for an additional ninety (90) days. The final determination hearing for the liquor license for a restaurant bar, microbrewery, taproom, or brewpub shall occur on hundred eighty (180) days from the date the restaurant bar, microbrewery, taproom brewery, or brewpub opens or the closest scheduled hearing day thereafter. The temporary license shall remain valid, unless subject to a temporary suspension or revocation, until the Excise Commissioner issues a determination at the final determination hearing. In the final determination hearing, the Excise Commissioner shall require evidence demonstrating that the sale of prepared meals or food consumed on the premises exceed fifty-one (51) percent of the restaurant bar's gross income and consider factors including but not limited to any nuisance notification regarding the restaurant bar, microbrewery, taproom brewery, or brewpub, any criminal activity as reported by the St. Louis Metropolitan Police Department or other law enforcement agency, and, if applicable, any violations of a conditional use permit. They shall also consider all factors enumerated in 14.08.040. The order shall inform the appellant of his or her right to seek judicial review of the final determination of the Excise Commissioner, as provided in RSMo §§ 536.100 to 536.140. The record of all hearings before the Excise Board shall include: (i) a record of the testimony presented at the hearing, which may be made by tape recording, digital recording or other appropriate means; (ii) all exhibits submitted as evidence at the hearing; and (iii) a copy of the order. Applicants for a liquor license for a restaurant bar, microbrewery, taproom, or brewpub who do not apply through the temporary license process outlined in this section may apply through the process outlined in 14.08.060. Nothing in this section shall be construed to invalidate any existing liquor moratorium or preclude future liquor moratoriums. Upon receiving an application for an initial license pursuant to section 14.06.025, the Excise Division will post online notification that an application has been received within five (5) days of receipt and the address of the proposed restaurant bar, taproom, brewpub or microbrewery.

The Excise Division shall also post online the initial hearing date for the initial license pursuant to 14.06.025 when scheduled. As soon as practicable after receiving an application for an initial license pursuant to 14.06.025, but no later than ten (10) days before the initial hearing, the Excise Division shall mail notification of the application and a weblink to view upcoming hearing notices as well as information on how to submit concerns to residents within three-hundred fifty (350) feet of the proposed restaurant bar, brewpub, taproom, or microbrewery.

(Ord. No. 71819, § 7, 4-16-2024.)

14.06.028 License—Additional requirements for restaurant bar initial license applications.

It shall be a condition precedent to the issuance of any initial restaurant bar license that a notice to the public placard be posted for a minimum of thirty (30) days upon a prominent, street facing, front façade of the structure in which the licensed premises would be located. The placard shall contain the words "NOTICE OF APPLICATION FOR RESTAURANT BAR/ MICROBREWERY/TAPROOM BREWERY/ BREWPUB LIQUOR LICENSE IN THIS BLOCK," printed in bold black letters at least one and one-half (1½) inches in height. If it is not possible to place said placards in the manner specified in the preceding sentence, the applicant shall place the placard in such manner as to give the greatest possible notice to neighbors and others passing by of the pending application. Said placards shall specify in clear and legible lettering the time and date of the filing of the application, the name of the applicant, the address of the premises proposed to be licensed, and the type of license (restaurant bar, microbrewery, taproom brewery, or brewpub) applied for. Satisfactory proof of said posting placard must be presented and approved by the Division of Excise prior to any issuance of the restaurant bar, microbrewery, taproom brewery, or brewpub license.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.030 Licenses and permits—Issuance.

All licenses issued under this chapter or title shall be issued by the License Collector, but no license shall be issued except with the approval of the Excise Commissioner as evidenced by a certificate of approval over the signature of the Excise Commissioner. All permits provided for by this chapter or title shall be issued by the Excise Commissioner. No license or permit for which fees are fixed in this chapter or title shall be issued except upon payment of the prescribed fee. In addition to the certificate of approval over the signature of the Excise Commissioner, the license issued by the License Collector shall bear the facsimile signature of the Excise Commissioner.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.040 Duration.

Drink, package, C.O.L., brewers, manufacturers and wholesalers licenses shall be for a period of one (1) year. Place of entertainment and place of amusement permits shall also be for a period of one (1) year. 3:00 a.m. closing permits shall be for a period of six (6) months. A picnic license shall be issued only for the day or days named therein and it shall not authorize the sale of intoxicating liquor or nonintoxicating beer for more than seven (7) days for each event and there shall be no more than four (4) events in any calendar year.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.050 Renewal of license.

The Excise Commissioner shall have the authority to authorize the renewal of all licenses issued under the provisions of this chapter or title from term to term, except to the extent that such authority is limited or denied by any other provision of this chapter or title or by any other law.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.060 Extension of license.

The Excise Commissioner shall have discretion to extend the term of any license issued under the provisions of this chapter or title, for a period not to exceed one hundred eighty (180) days from the date of expiration of such license, for the purpose of completing investigations and other necessary elements in the processing of renewal applications. The charge for the extension shall be the same percentage of the annual license fee as the extension period constitutes of the annual license period.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.070 Separate license for each location.

A separate license must be obtained for each premises or place of business in the same building, then the building shall be partitioned in a manner that the partitions shall run from the front of the building to the rear of the building, from the ceiling to the floor and be permanently affixed to the ceiling, floor, front and rear of the building in a manner as to make two (2) separate distinct premises. Their shall be a separate entrance for each premises and each premises shall have a different street address where intoxicating liquor and/or nonintoxicating beer is sold and no person in any capacity shall sell intoxicating liquor or nonintoxicating beer in any place other than is designated in a license issued pursuant to this title.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.075 Lost or destroyed license.

Whenever a license is lost or destroyed, a written statement shall be submitted with the date which the

license was lost or destroyed and under what circumstances the license was lost or destroyed. A duplicate license will be issued upon the payment of twenty dollars ($20.00) to cover the cost of the duplicate license.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.080 Manufacturers and wholesalers not to have interest in retail businesses.

A. Manufacturers, distillers, wholesalers, wine makers, brewers or their employees, officers or agents shall not, under any circumstances, directly or indirectly, have any financial interest in the retail business for the sale of intoxicating liquor or nonintoxicating beer, and shall not, directly or indirectly, loan, give away or furnish equipment, money, credit or property of any kind, except ordinary commercial credit for intoxicating liquor or nonintoxicating beer sold, to retail dealers except as provided by state or federal law or regulation. Proof of such relationship shall be grounds for revoking the license of the manufacturer, distiller, or wholesaler, or wine maker, or brewer and the retailer. No manufacturer, distiller, wholesaler, wine maker, or brewer, or the employees, officers or agents thereof, shall make any contract in any way concerning any of their products, obligating retail dealers to buy or sell only the products of any manufacturer, distiller, brewer, or wine maker, or obligating retail dealers to buy or sell the major part of such products required by retail vendors from any manufacturer, distiller, brewer or wine maker, and proof of the execution of any such arrangement, or contract may result in the cancellation of or revocation of the license of the manufacturer, brewer, wholesaler, or distributor and of the retailer.

B. Notwithstanding any other provision of this chapter or title to the contrary, manufacturers, wholesalers, distillers, wine makers, brewers or their employees, agents or officers shall be permitted to make contributions of money or merchandise to a licensed retail dealer that is a charitable or religious organization or an educational institution if such contributions are unrelated to such organization's retail operations.

C. Notwithstanding any other provision of this chapter or title to the contrary, a brewer or manufacturer, its employees, officers or agents may have a financial interest in the retail business for sale of intoxicating liquor and nonintoxicating beer at entertainment facilities owned, in whole or in part, by the brewer or manufacturer, its subsidiaries or affiliates including, but not limited to, arenas and stadiums used primarily for concerts, shows and sporting events of any kind.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.090 Disposition of fees.

All fees collected by the License Collector and the Excise Commissioner pursuant to the provisions of this chapter and title shall be accounted for and paid into the City Treasury, as other funds belonging to the City are accounted for and paid. The Comptroller shall set aside out of such funds an amount sufficient to pay the expenses of the Excise Division for the current and fiscal years and to credit the balance thereof to the municipal revenue fund of the City.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.100 Qualifications of licensee—Natural persons.

A. No natural person shall be qualified for a license under the provisions of this chapter or title unless he: (1) is of good moral character; (2) is registered to vote in this state; (3) has paid all taxes and license fees due and/or payable by him to the City; (4) has never been convicted since the ratification of the Twenty First Amendment of the Constitution of the United States of a violation of the provisions of any state or federal statute governing, regulating, or otherwise applicable to the manufacture or sale of intoxicating liquor or nonintoxicating beer; (5) has not been convicted of violating the provisions of any state or federal statute regarding contribution to the delinquency of a minor or sexual offenses involving persons other than consenting adults; (6) has not been convicted of violating any provision of state or federal law making it a felony to use, possess, or sell a controlled substance; (7) has not had a license issued under the provisions of this chapter or title, or their predecessors, revoked within two years of the date of his petition; (8) was not a managing officer, corporate officer, or stockholder, holding ten percent or more of the outstanding stock or other financial interest, of a corporation which had a license under the provisions of this chapter or title, or their predecessors, revoked within two years of the date of his petition; and (9) is not indebted to any person, partnership or corporation which would not be qualified for a license under the provisions of this chapter, provided that the Excise Commissioner may waive this prohibition where he finds that the person, partnership or corporation to whom an applicant or licensee is

indebted (a) has not, since the ratification of the Twenty-First Amendment to the United States Constitution, been convicted of a violation of the provisions of any state or federal statute governing, regulating, or otherwise applicable to the manufacture or sale of intoxicating liquor or nonintoxicating beer, and (b) is of good moral character. An applicant or licensee who is not an assessed taxpayer must file a return for all property for which he is legally subject to taxation at the earliest date such return is acceptable to the city assessor. The Board of Aldermen specifically finds that crimes of the nature enumerated in subparagraph 5 above make a person unfit and incompetent to possess a liquor license.

B. Where an applicant or licensee has been found to be unfit or incompetent to hold a license the Excise Commissioner shall deny the application or revoke the license held by such person.

C. Nothing in this section shall prevent the Excise Commissioner from considering the facts underlying an applicant's or licensee's felony conviction when determining whether such applicant or licensee is of good moral character.

(Ord. No. 71819, § 7, 4-16-2024.)

14.06.110 Qualifications of licensee—Corporations and clubs.

All corporations and clubs licensed under the provisions of this title must comply with all City ordinances, and all state statutes, which pertain to corporations. The managing officer, for liquor licensing purposes, of all corporations and clubs applying for a license under the provisions of this title must meet all the qualifications of a natural person as set forth in the preceding section. Managing officers of corporations and clubs may not be changed without the prior approval of the Excise Commissioner. No corporation or club shall be qualified for a license under this chapter or title unless (1) all officers and directors thereof are of good moral character and (2) it has paid all taxes due and payable by it to the City.

(Ord. No. 71819, § 7, 4-16-2024.)

14.06.120 Qualifications of licensee—Financial interests—Corporations.

A. No corporation shall be qualified for a license under the provisions of this chapter or title if the corporation, or any officer, director or stockholders, owning, individually or in the aggregate, legally or beneficially, directly or indirectly, ten (10) percent or more of the stock of the corporation or other financial interest therein: (1) shall have had a license revoked under the provisions of this chapter or title, or their predecessors, within two (2) years of the date of the petition; (2) shall have been a managing officer, corporate officer or stockholder, owning, legally or beneficially, directly or indirectly, ten (10) percent or more of the stock of the corporation, of a corporation which had a license issued under the provisions of this chapter or title, or their predecessors, revoked within two (2) years of the date of the petition; (3) shall have been convicted of a violation of the provisions of any state or federal statute governing, regulating, or otherwise applicable to the manufacture or sale of intoxicating liquor or nonintoxicating beer since the ratification of the Twenty-First Amendment to the Constitution of the United States; (4) shall have been convicted of violating the provisions of any state or federal statute relating to prostitution, contribution to the delinquency of a minor, or sexual offenses involving persons other than consenting adults; (5) has not been convicted of violating any provision of state or federal law making it a felony to use, possess, or sell a controlled substance; or (6) is indebted to any person, corporation or partnership which would not be qualified to possess a license under the provisions of this chapter, provided that the Excise Commissioner may waive this prohibition where he finds that the person, partnership or corporation to whom a corporation is indebted (a) has not, since the ratification of the Twenty-First Amendment been convicted of a violation of the provisions of any state or federal statute governing, regulating, or otherwise applicable to the manufacture or sale of intoxicating liquor or nonintoxicating beer, and (b) is of good moral character. The Board of Aldermen specifically finds that crimes of the nature enumerated in subsection A(4) of this section make a person unfit and incompetent to have a financial interest in a corporation possessing a liquor license.

B. Where a corporation is found to be unfit or incompetent to hold a license, the Excise Commissioner shall either deny the corporation's application or revoke its license.

C. Nothing in this section shall prohibit the Excise Commissioner from considering the facts underlying the conviction of a corporation, or any of its officers, directors or stockholders when making a determination as to the moral character of such officers, directors and stockholders.

D. A limited liability company (LLC) shall be treated as a corporation for purposes of this provision.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.130 Qualifications of licensee—Partnerships.

No partnership shall be qualified for a license under the provisions of this chapter or title if any natural person who is a member of the partnership would not be qualified for a license pursuant to the provisions of Section 14.06.110. Where a corporation is a member of a partnership, the partnership shall not be qualified for a license if the corporation would not be qualified for a license pursuant to the provisions of Sections 14.06.120 or 14.06.130.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.140 Qualifications of licensee—Financial interest—Intoxicating liquor and nonintoxicating beer licenses.

Any person to whom more than one (1) retail license has been issued under the provisions of this chapter or title who shall suffer the revocation of one (1) of his licenses shall not be eligible to renew his other licenses when they expire. No additional license provided for by this chapter or title shall be issued to such person for a period of two (2) years from the date of expiration of the last of his licenses for which renewal was refused. No person licensed under the provisions of this chapter or title for the sale at retail of intoxicating liquor may be employed on, or perform any acts commonly performed by an employee on premises licensed to another person under the provisions of this chapter or title for the sale at retail of nonintoxicating beer. No person licensed under the provisions of this chapter or title for the sale at retail of nonintoxicating beer may be employed on, or perform any acts commonly performed by an employee on premises licensed to another person under the provisions of this chapter or title for the sale at retail of intoxicating liquor.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.150 Qualifications of licensee—Financial interest—In other drink licenses.

No person shall have more than three (3) drink licenses or sell intoxicating liquor by the drink at retail for consumption on the premises where sold at more than three (3) places in this State. In determining whether a person or corporation to which a drink license has been issued has more than five (5) drink licenses the Excise Commissioner shall include all licenses issued to any employee, officer, agent, subsidiary or affiliate of a person or corporation in the total of the licenses held by such person or corporation. Provided further, that the Excise Commissioner shall not include in the total of the drink licenses issued to a person or corporation, for purposes of this section, any drink license issued for a restaurant, as that term is defined in Section 14.01.390.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.160 Change of ownership.

No person licensed under the provisions of this chapter or title 7 may sell, lease, sub lease, rent, hypothecate, convey, assign or otherwise transfer in any manner a financial interest, other than the sale of personal property removed from the licensed premises, other than corporate stock or ordinary bank or commercial credit, in all, or in any part of his licensed premises unless the person(s) to whom such interest is to be transferred: (1) has first filed with the Excise Commissioner a complete new application for a license, including, when required, a neighborhood consent petition; and (2) the Excise Commissioner has approved the application of the person(s) to whom such interest is to be transferred.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.165 Change of facts.

Whenever there is a change in the license status, such a death of licensee, change of managing officer, change of ownership, or change in the "doing business as" name, the applicant, the licensee or his representative shall notify the Excise Commissioner in writing within ten days of the change. Further, if the change in the license status is a change in the "doing business as" name, then the licensee or his representative shall submit a Missouri State Sales Tax Number that reflects the change in the "doing business as" name.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.170 Transfer of corporate stock—Of corporations listed on stock exchanges.

Corporations licensed under the provisions of this chapter or title with stock listed on stock exchanges or available for purchase by the public through recognized stock brokers, must comply with all rules, regulations, orders and directions of the Excise Commissioner relating to such corporations.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.180 Transfer of corporate stock—All other corporations.

All corporations, except those provided for in Section 14.06.170, licensed under the provisions of this chapter or title shall notify the Excise Commissioner in writing, any time corporate stock or a corporate stock option representing ten (10) percent or more of the value of the corporation is sold or conveyed in any manner. The written notice must be delivered in person or sent by registered mail to the Excise Commissioner within ten (10) days of the sale, conveyance or change.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.190 New petitions for corporations.

Whenever the reports required by Section 14.06.180 show that the total amount of stock sold, or conveyed in any manner, or placed under option, to a person or persons who were not stockholders at the time the last complete petition for a license was approved by the Excise Commissioner, fifty (50) percent of the outstanding stock of the corporation, such corporation must file a complete new petition with the Excise Commissioner. Provided, that when the sale of liquor is merely incidental to the primary business conducted by such corporation on their licensed premises, the Excise Commissioner may, in his discretion, waive the requirement of neighborhood approval in connection with such complete new petition.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.200 Corporate licensees required to maintain corporate status.

A corporation licensed under this chapter or title is required to maintain its corporate charter in good standing in order to maintain its license. If a corporation licensed under the provisions of this chapter or title has its charter revoked, the Excise Commissioner shall immediately revoke its liquor license. If a corporation licensed under the provisions of this chapter or title forfeits its charter, the Excise Commissioner shall revoke its liquor license thirty (30) days after the date the charter becomes forfeit, unless the charter has been reinstated during that period.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.205 Managing officers, when, qualifications—Limitations on management agreements.

A. All corporations, clubs and partnerships shall be required to name a managing officer at the time an application for a retail license is made. Any corporation, club or partnership to which a retail license had been issued prior to the effective date of the ordinance from which this title derives, and which had not previously named a managing officer, shall provide the Excise Commissioner with the name of the managing officer upon making application for renewal of its license.

B. Any individual licensee who does not intend to supervise the day-to-day operation of his liquor licensed premises shall also be required to name a managing officer at the time application for a retail license is made. Further, any individual licensee, to whom a license was issued prior to the effective date of the ordinance from which this title derives, and who does not oversee the day-to-day operation of his liquor licensed premises, shall provide the Excise Commissioner with the name of the managing officer upon making application for renewal of his license.

C. When a licensee is required to provide the Excise Commissioner with the name of a managing officer, the licensee must name as managing officer the person with day to day charge of the operation of the liquor licensed premises. No person shall qualify to act as a managing officer of a licensee unless said person would be qualified for a license pursuant to the provisions of Section 14.06.110.

D. A licensee may enter into an agreement with another person to manage the licensee's premises, subject to the following restrictions:

1. If the person who will be managing the licensed premises is a natural person, he must meet all of the qualifications, set forth in Section 14.06.110, which a natural person must meet to be qualified for a license; if the person who will be managing the licensed premises is a corporation or partnership, said person must meet all of the qualifications which a corporation or partnership must meet to be qualified for a license; and

2. No money, or other thing of value, may be paid or transferred to the licensee by the person who is to manage the licensee's premises, or any other person, as inducement, consideration or compensation for the licensee's entering into the management agreement;

3. The person who is to manage the licensed premises may not receive, as compensation, bonus or gift, more than twenty-five (25) percent of the gross profits of the licensed premises. Nothing herein shall prevent payment of a salary to the person who is to manage the licensed premises.

4. Where the person who is to manage the licensed premises is a corporation or partnership, an employee, director or partner of such corporation or partnership, who will have actual charge of the day-to-day operations of the licensed premises, must be named as managing officer pursuant to the provisions of this section.

5. All management agreements must be in writing and a copy thereof must be provided to the Excise Commissioner at least one week prior to the effective date thereof.

E. Any person who enters into a management agreement which does not comply with all of the conditions set forth in subsection D of this section, shall be guilty of an ordinance violation.

F. In the event the position of managing officer becomes vacant, the corporation must name a managing officer with fifteen (15) days after the vacancy occurs, with a managing officer being qualified under the provisions of this title.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.207 Change in managing officer.

A licensee intending to make a change in its managing officer for an existing business licensed under this title shall not operate with its new managing officer without first submitting written approval from the managing officer to the Excise Commissioner. He/she shall not participate in the operation of the business without said approval. In the event of a sudden or unanticipated change in the managing officer, the licensee shall submit a written request for approval of such change to the Excise Commissioner not later than thirty (30) business days from the date of such change. An application for a change in managing officer shall be made to the Excise Commissioner and shall cost forty dollars ($40.00) to defray the cost of investigation and processing the application. The fee is nonrefundable.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.210 Employees—Qualifications.

A. No person licensed under the provisions of this chapter or title may employ any person: (1) whose license issued under the provisions of this chapter or title, or their predecessors, has been revoked during the preceding two years; (2) who was a managing officer, corporate officer or corporate stockholder holding more than five (5) percent of stock of a corporation whose license issued under the provisions of this chapter or title, or their predecessors, has been revoked during the preceding two (2) years; (3) who has been convicted since the ratification of the Twenty-First Amendment to the Constitution of the United States of violating the provisions of any state or federal statute governing, regulating, or otherwise applicable to the manufacturer or sale of intoxicating liquor or nonintoxicating beer; or (4) has been convicted of violating the provisions of any state or federal statute relating to prostitution, contribution to the delinquency of a minor, or sexual offenses involving persons other than consenting adults; or (5) has been convicted of any state or federal statute making it a felony to use, possess or sell a controlled substance. The Board of Aldermen specifically finds that crimes of the nature enumerated in subsection A(4) of Section 14.06.120 make a person unfit and incompetent to work on or about a licensed premises.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.220 Employees—Fingerprinting.

Persons licensed under the provisions of this title shall require their employees to submit to fingerprinting when it is deemed necessary by the Excise Commissioner in order to determine if they meet qualifications of employees.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.225 Employee prohibition from drinking while working.

It shall be unlawful for a licensee and/or managing officer to allow an employee, servant or agent who is on duty to consume any intoxicating liquor or nonintoxicating beer while working on or about the licensed premises, except when the licensed premises is closed to the public.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.230 Persons functioning as employees.

No person licensed under the provisions of this chapter or title shall allow or suffer or permit any person to perform any act commonly performed by an employee when the person would not be permitted to perform the act as an employee under the provisions of this chapter or title.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.240 Licensees to notify Excise Commissioner of employees.

All persons to whom a drink, C.O.L. or package license has been issued under the provisions of this chapter or title shall obtain a Missouri State Highway

Patrol criminal record check and notify the Excise Commissioner in writing of all full-time, management level employees who handle or sell, or assist in the handling or sale of intoxicating liquor or nonintoxicating beer in any manner, or function in an administrative, managerial or supervisory capacity with respect to employees who do handle or sell intoxicating liquor or nonintoxicating beer. The notice shall be in writing and must be delivered in person to the Excise Commissioner's office or deposited in the United States mail on or before the fifth day of the month following the date on which the persons first became employees.

Provided, that there shall be no penalty imposed on a licensee for employing an ineligible employee if the licensee: (1) was unaware that such employee was ineligible for employment under the provisions of this chapter and title, (2) has timely notified the Excise Commissioner of his employment of said employee as provided herein, and (3) within fourteen (14) days of being notified by the Excise Commissioner that such employee is ineligible removes the employee from the position for which he is ineligible by either dismissing or transferring him.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.250 Package license—Businesses enumerated.

A. The Excise Commissioner shall not issue a new package license to any person for a premises unless said premises is, or shall be used as, either a pharmacy, retail grocery or convenience store, and/or a florist. As used in this section, the term "pharmacy" means a retail establishment which employs at least one (1) full time registered pharmacist. The term "retail grocery convenience store" shall mean a retail establishment which (1) has a minimum of one thousand five hundred (1,500) net square feet of sales area, including glassed security areas, exclusive of storage rooms, walk in coolers, restrooms, and areas not generally accessible to the general public; (2) displays a minimum of seven hundred fifty (750) separate and distinguishable products for sale, exclusive of alcoholic beverages, tobacco products, gasoline, oil, and automotive supplies; and (3) each month purchases, or for premises making application for a new license will purchase, products for resale, exclusive of alcoholic beverages, tobacco products, gasoline, oil and automotive supplies, which have a minimum wholesale cost of five thousand dollars ($5,000.00.) Should a premise for which a new license is issued after the effective date of this section cease to operate as a pharmacy, florist, or retail grocery or convenience store, the Excise Commissioner shall then either cancel or revoke the issued license. Nothing herein shall prevent the Excise Commissioner from renewing a package license for a premise which is not a pharmacy, florist, retail grocery or convenience store for which a package license was initially issued prior to the effective date of this section.

B. Further, nothing in this chapter shall prevent the Excise Commissioner from issuing a new package license to a person for a premises for which a valid package license was in effect on the date such person files his application for said license, when the applicant has entered into a contract with the existing licensee for the purchase of the premises, inventory, and/or good will of the existing licensed business.

C. Notwithstanding any other provisions of this chapter or title, if a license has been issued for a premises prior to effective date of this chapter, and said premises is then blighted or condemned or the licensee is required to move from said premises by some other form of governmental action, then the licensee may relocate to another premises outside of the petition circle of the initial premises, regardless of whether said new premises complies with the requirements of this section, provided, that the licensee obtains neighborhood consent, pursuant to the provisions of Section 14.08.050, et seq.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.260 Package licensee—Fee.

The payment of a fee for a package license shall not exempt any person from liability for a merchant's or business license tax, but the value of intoxicating liquor or nonintoxicating beer sold at retail in the original package shall not be included in the computation of a merchant's tax.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.270 Licenses prohibited in certain places.

No license issued under the provision of this title shall be granted or renewed in a building or portion of a building occupied or used for an unlawful purpose, nor in any room or portion of a building connected by any entrance or exit or other means of communication with any room or place used for an unlawful purpose.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.280 Record restrictions and zoning laws.

The Excise Commissioner shall not recommend the issuance of a license under the provisions of this title in violation of any record restrictions upon the property on which it is proposed to operate, or in violation of any zoning laws of the City.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.290 License—Revocation, cancellation, fine or suspension—General.

Any person holding any license issued pursuant to the provisions of this title and who violates any of the terms of this title, or any rule, regulation, order or direction of the Excise Commissioner shall, in addition to the other penalties provided for, suffer the revocation of his license by the Excise Commissioner; or, the Excise Commissioner may in his discretion warn a licensee, or may suspend his license for not more than ten (10) days for each violation, may cancel his license or impose an administrative fine of five hundred dollars ($500.00) for each violation, or any combination thereof. To the extent any liquor license is revoked for violations of any of the provisions of this title or violations of other applicable City Code provisions related to the health and safety of the specific establishment, the holder of the revoked liquor license shall be precluded from reapplication for a liquor license for a period of one (1) year from the date of the revocation.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.295 License—Emergency measures.

Any person holding any license issued pursuant to the provisions of this title holds said license conditionally, specifically, contingent upon compliance with all terms of this title as well as any applicable laws of the City of St. Louis governing the subject premises and the health and safety of its occupants or guests. In the event an emergency situation consisting of an imminent danger to the health, safety and welfare of the public is determined by the Excise Commissioner to exist regarding the person or premises of the license holder, the Excise Commissioner shall be empowered to immediately, temporarily suspend any such license for a period of forty-eight (48) to seventy-two (72) hours.

Notice of such action shall be provided to any person holding any license of this determination as soon as practicable by phone or other personal contact with the license holder, with written notice to be provided no later than twenty-four (24) hours after the Excise Commissioner's initial determination. Said notice shall be provided via any acceptable written means or by posting of same of the subject premises. To the extent the deadline for said notice should fall on a Saturday or Sunday or official holiday, then said notice must be provided by the end of the next business day. Said written notice shall contain a summary of the basis and length of time the temporary suspension of said license shall remain in effect. Upon request of the license holder, a meeting with the Excise Commissioner is to be scheduled as soon as practicable; such meeting can be in person or by telephone.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.297 License—Jurisdictional cooperation.

The assistance and cooperation of the Police, Fire, Streets, Parks and Health Departments and all other city officials shall be available as required in the performance of the duties of the Excise Commissioner. Nothing in this title shall be construed as limiting the ability of other relevant City departments or agencies to enforce its laws regarding any premise or person holding any license issued pursuant to the provisions of this title.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.300 License—Revocation, cancellation, suspension or fine—Renewed licenses.

The Excise Commissioner shall have authority to suspend, cancel, impose an administrative fine of five hundred dollars ($500.00) for each violation, revoke or impose any combination thereof any license renewed under the provisions of this title for any violations of this Code or for any violations or infractions of the rules, regulations, orders and directions, terms or conditions of the Excise Commissioner which occurred during the term of any prior consecutive license issued to the same person for the same premises.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.310 License—Revocation, cancellation, suspension, or fine—Picnic licenses.

In addition to the other procedures provided herein, if the Excise Commissioner, in his judgment, believes that premises covered by a picnic license are disorderly in any manner, he shall have the authority to order the immediate summary suspension of such license. A hearing shall be held on the next working day following such summary suspension. If the Excise Commissioner, after the hearing, decides the continuation of the license

is detrimental to the best interests of the neighborhood, based on consideration of the factors enumerated in Section 14.08.040 he shall revoke or cancel the picnic license or impose an administrative fine of five hundred dollars ($500.00) per violation, or any combination thereof.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.320 License—Revocation, cancellation, suspension, or fine—Procedure.

Before imposing a fine, revoking, canceling, suspending any licenses, except picnic licenses, granted pursuant to the provisions of this title, the Excise Commissioner shall give the licensee at least ten (10) days written notice of any complaint or charge against him and the nature of the complaint or charge, and shall fix the date for the hearing on the complaint or charge, upon which hearing the licensee shall have the right to have counsel and to produce witnesses in his behalf. If the Excise Commissioner, shall, after the hearing, fine, revoke, suspend or cancel the license of the licensee, his final decision and action thereon shall be reviewable in the Circuit Court as provided by law.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.325 Conduct of hearing and right of appeal.

Any administrative hearing pursuant to this title shall be conducted as a contested case pursuant to the Missouri Administrative Procedure Act, RSMo § 536, et seq. RSMo § 536.070 shall control the rules of evidence, objections, witnesses, judicial notice, affidavits as evidence, and the transcript requirements of the administrative hearing.

No violation may be established except upon proof by a preponderance of the evidence; provided, however, that a violation notice, or a copy thereof, shall be prima facie evidence of the correctness of the facts specified therein. Upon conclusion of a hearing, the Excise Commissioner or the Administrative Hearing Officer (collectively, "Hearing Officer") shall issue findings of fact, conclusions of law and order of the Hearing Officer ("Order") setting forth the facts and law which support his/her determination. In the event that a violation is found to exist, the hearing officer shall make a determination upon the facts established as to the proper enforcement action pursuant to this title. In addition to revocation, suspension, cancellation or fine which may be imposed upon the subject license, it shall also be within the authority of the hearing officer to order the license holder to implement reasonable measures designed to prevent the recurrence of the violation activity consistent with 14.02.040 of this title. The order shall inform the respondent of his or her right to seek judicial review of the Hearing Officer's final determination, as provided in RSMo §§ 536.100 to 536.140. The record of all hearings before the Hearing Officer shall include: (i) a record of the testimony presented at the hearing, which may be made by tape recording, digital recording or other appropriate means; (ii) all exhibits submitted as evidence at the hearing; and (iii) a copy of the order.
(Ord. No. 71819, § 7, 4-16-2024.)

14.06.330 License transfers.

A. No license issued under the provisions of this title shall be transferred except as specified in this section:

1. In the case of death of a person licensed under the provisions of this title the Excise Commissioner may transfer the license to the widow or widower or next of kin of such deceased, provided that the transferee meets the requirements and qualifications of this title.

2. In the case of the death or withdrawal of one (1) or more of the members of a partnership to which a license has been issued under the provisions of this title, the Excise Commissioner shall, upon request, transfer the license to permit the remaining partner or partners to operate the business.

3. In cases where a license has been issued under this chapter or title to a sole proprietorship or partnership, the Excise Commissioner may, upon request, transfer the license to a corporation, provided that: (a) if the license was issued to a sole proprietorship, the person to whom the license was initially issued owns all of the stock in the corporation to which the license is to be transferred; or (b) if the license was issued to a partnership, all of the stock in the corporation to which the license is to be transferred is held by persons who were member of the partnership.

4. Where a license has been issued in the name of an individual, the Excise Commissioner may, upon request, transfer the license to a partnership consisting of such individual and his or her lawful spouse. The Excise Commissioner is without authority to transfer a license held by an individual to a partnership in which a person other than the lawful spouse of the licensee is a member.

5. Further, in the event of death or incapacity of any existing business owner who validly holds a license, it shall be allowed for a co-owner of said business to update and continue to hold said license without need for further reapplication.

B. Licenses transferred pursuant to this section shall be renewable. It shall not be necessary for a person or entity to which a license has been transferred pursuant to subsection A of this section to file a neighborhood consent petition. Nor shall it be necessary for a licensee which has had a license transferred to a new premises pursuant to subsection B of this section to file a neighborhood consent petition for the new premises. (Ord. No. 71819, § 7, 4-16-2024.)

14.06.340 Conduct of business upon licensed premises.

No person shall conduct or operate any business upon a licensed premises other than the person to whom the license for such premises has been issued. (Ord. No. 71819, § 7, 4-16-2024.)

Chapter 14.07.

MANUFACTURERS, WHOLESALERS, AND DISTRIBUTORS

Editor's Note:

Ord. No. 71819, § 8, approved April 16, 2024, amended the Code by repealing former Ch. 14.07, §§ 14.07.010—14.07.060, and adding a new Ch. 14.07. Former 14.07 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009.

Sections:

14.07.010 License fees.

14.07.020 Sales to licensed dealers only.

14.07.030 Alcoholic content on label.

14.07.040 Shipment outside City to evade Code.

14.07.050 Transportation companies to report shipments.

14.07.060 Microbrewery license.

14.07.010 License fees.

For the privilege of manufacturing intoxicating liquor or nonintoxicating beer in the City for sale and consumption for beverage purposes, and for the privilege of soliciting the sale of and of selling intoxicating liquor or nonintoxicating beer in the City for resale by any other person either by resident manufacturers, distributors and wholesalers or nonresident manufacturers, distributors and wholesalers, the following annual fees shall be charged, payable in advance:

A. Full manufacturer, six hundred seventy-five dollars ($675.00). Such license shall permit the manufacturing, distilling or blending of intoxicating liquor of all kinds, and the sale of such liquor at wholesale to wholesalers only.

B. Twenty-two (22) percent manufacturer, three hundred dollars ($300.00). Such license shall permit the manufacturing of intoxicating liquor, other than malt liquor, containing not in excess of twenty-two (22) percent alcohol by weight, and the sale of such liquor at wholesale.

C. Five (5) percent manufacturer brewer, three hundred seventy-five dollars ($375.00). Such license shall permit the manufacture or brewing of malt liquor containing not in excess of five (5) percent alcohol by weight, and the sale of such malt liquor at wholesale.

D. Three and two-tenths (3.2) percent brewer, three-hundred seventy-five dollars ($375.00). Such license shall permit the manufacture or brewing of nonintoxicating beer, and the sale of such nonintoxicating beer at wholesale.

E. Full wholesaler, seven hundred fifty dollars ($750.00). Such license shall permit the selling of intoxicating liquor of all kinds at wholesale.

F. Twenty-two (22) percent wholesaler, three hundred dollars ($300.00). Such license shall permit the selling of intoxicating liquor other than malt liquor containing not in excess of twenty-two (22) percent alcohol by weight at wholesale.

G. Five (5) percent wholesaler, one hundred fifty dollars ($150.00). Such license shall permit the selling of malt liquor containing not in excess of five (5) percent alcohol by weight at wholesale.

H. Three and two-tenths (3.2) percent wholesaler, seventy-five dollars ($75.00). Such license shall permit the sale of nonintoxicating beer at wholesale.
(Ord. No. 71819, § 8, 4-16-2024.)

14.07.020 Sales to licensed dealers only.

No person licensed under the provisions of this chapter for the manufacture, brewing, distilling, rectifying, or sale at wholesale of intoxicating liquor or nonintoxicating beer, his agent, servant or employee shall sell or deliver any intoxicating liquor or nonintoxicating beer to any person not properly licensed for the resale of such intoxicating liquor or nonintoxicating

beer or if there is not displayed prominently on the premises a City of St. Louis liquor license, State of Missouri liquor license for the current license year.
(Ord. No. 71819, § 8, 4-16-2024.)

14.07.030 Alcoholic content on label.

No person holding a license to manufacture intoxicating liquor or nonintoxicating beer for sale at wholesale, shall sell or deliver any intoxicating liquor or nonintoxicating beer except in a container having printed or painted thereon in bold legible letters the name of the manufacturer and the percentage of alcoholic content by weight, volume or proof, of such liquor. Except that, the provisions of this section shall not apply to malt liquor which is over three and two-tenths (3.2) percent alcohol by weight and not in excess of five (5) percent alcohol by volume.
(Ord. No. 71819, § 8, 4-16-2024.)

14.07.040 Shipment outside City to evade Code.

No person holding a license to manufacture and sell intoxicating liquors or nonintoxicating beer, or to sell intoxicating liquors or nonintoxicating beer at wholesale or at retail in the City, shall ship liquors or nonintoxicating beer outside of the City limits for the purpose, or with the intent, of having the liquors or nonintoxicating beer transported into the City, so as to evade any of the requirements of this Code.
(Ord. No. 71819, § 8, 4-16-2024.)

14.07.050 Transportation companies to report shipments.

Every railroad company, express company, airplane, motor transportation company or other transportation company, and every other person, whether corporation or individual, who shall transport any intoxicating liquor or nonintoxicating beer into the City and deliver the same to any person, shall, when requested, furnish the Excise Commissioner a duplicate bill of lading, or receipt for such intoxicating liquor or nonintoxicating beer, showing the name of the consigner and consignee, date, place received, and quantity of intoxicating liquors or nonintoxicating beer.
(Ord. No. 71819, § 8, 4-16-2024.)

14.07.060 Microbrewery license.

A. A microbrewery license shall authorize the licensee to manufacture beer and malt liquor in quantities not to exceed ten thousand (10,000) barrels per annum. The fee for such license shall be three hundred seventy-five dollars ($375.00) annually.

B. Notwithstanding any other provision of this chapter or title to the contrary, the holder of a microbrewery license may apply for a drink license and the Excise Commissioner may authorize issuance of, and the License Collector may issue, a drink license to the holder of the microbrewery license. A drink license may only be issued to a holder of a microbrewery license for the same premises for which the microbrewery license is issued. The provisions of this section shall apply to applications for issuance, renewal and protest of retail liquor licenses for premises licensed as a microbrewery.

C. The holder of a microbrewer's license may also sell beer and malt liquor produced on the brewery premises to duly licensed wholesalers. However, holders of a microbrewer's license shall not, under any circumstances, directly or indirectly, have any financial interest in any wholesaler's business.
(Ord. No. 71819, § 8, 4-16-2024.)

Chapter 14.08

RETAIL LICENSES

Editor's Note:

Ord. No. 71819, § 9, approved April 16, 2024, amended the Code by repealing former Ch. 14.08, §§ 14.08.010—14.08.235, and adding a new Ch. 14.08. Former 14.08 pertained to similar subject matter, and derived from Ord. No. 68536, approved December 15, 2009; Ord. No. 69346, approved December 20, 2012; and Ord. No. 69349, approved December 20, 2012.

Sections:

14.08.010 Licenses and permits—Term—Fees.

14.08.020 License application—Contents.

14.08.030 Persons who own property, reside or conduct business within the petition circle.

14.08.040 License detrimental to neighborhood—Factors to be considered by Excise Commissioner in making determination.

14.08.050 License applications—Neighborhood approval—Exemptions—Petition contents.

14.08.055 Activities on licensed premises not limited to those identified on application—Exceptions—Excise

commissioner to be notified of new activities to be conducted on licensed premises.

14.08.060 License Applications—Notice—Hearings.

14.08.070 License approval—Generally.

14.08.080 License approval—Discretion of Excise Commissioner.

14.08.090 License renewal applications—When—How made.

14.08.100 Renewal of licenses—Discretion of Excise Commissioner—Suspension or extension in certain circumstances.

14.08.110 Protests against licenses or applications—When and how initiated.

14.08.120 Protest petitions—Contents—Time for collection of signatures.

14.08.130 Hearing on protest—Notice—Procedure.

14.08.140 Protests—Necessity of majority of signatures on petition protesting continuation of license—Effect of majority of signatures on petition protesting a license application.

14.08.150 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.

14.08.160 Extension of protested license.

14.08.170 Submission and withdrawal of signatures from consent or protest petitions.

14.08.180 Common eating and drinking area—Permit—Sale of drinks for consumption.

14.08.190 Motor vehicle service stations.

14.08.200 Summer garden/sidewalk café.

14.08.210 Controlled access liquor system.

14.08.220 3:00 a.m. closing permit—Issuance—Conditions—Exemptions.

14.08.230 Temporary catering permits.

14.08.235 Annual caterers permit.

14.08.010 Licenses and permits—Term—Fees.

A. All retail licenses issued or renewed under this chapter or title, except for 3:00 a.m. closing permits, shall be issued for a term of one (1) year. 3:00 a.m. closing permits shall be issued for a term of six (6) months and may be revoked or suspended independent of the full drink liquor license.

B. Notwithstanding any other provisions of this section, a picnic license shall not authorize the sale of intoxicating liquor or nonintoxicating beer by the licensee for more than seven (7) days during the one-year term of the license.

C. The license fees for the various retail licenses which may be issued under this chapter and title shall be in the following annual amounts, which shall be payable at the time a license is issued or renewed, and these fees shall be in addition to any other fee required by law:

1. Full drink license	$450.00.
2. Full drink Sunday license	$300.00.
3. Twenty-two (22) percent drink license	$350.00.
4. Five (5) percent drink license	$75.00.
5. Full package license	$150.00.
6. Twenty-two (22) percent package license	$300.00.
7. Twenty-two (22) percent package Sunday license	$200.00.
8. Five (5) percent package license	$75.00.
9. Five (5) percent package Sunday license	$100.00.
10. 3.2% package license	$23.00.
11. C.O.L. license (club/organization)	$90.00.
12. Full drink picnic license	$37.50.
13. Five (5) percent drink picnic license	$37.50.
14. Special sports stadium license	$450.00.
15. Ballroom Sunday sale permit	$300.00.
16. Place of entertainment Sunday sale permit	$300.00.
17. Place of amusement Sunday sale permit	$300.00.
18. Controlled access liquor cabinet system permit; per room charge	$5.00.

19. Catering permits:

a. Temporary catering permit, per event: $15.00 per day, per location.

b. Annual catering permit: maximum 50 days per year: $750.00; unlimited per year: $1,500.00, catering permit per event.

20. Liquor manufacturer license. . . . . $675.00.

21. Full wholesale license . . . . $750.00.

22. Sunday original package permit . . . . . $300.00.

23. Sunday by the drink convention trade area license. . . . . $900.00.

24. Tasting permit—At package retail establishments only . . . . . $37.50.

25. Copy charge—actual cost of document search and duplication.

26. Transcription fees-actual cost of recording, transcribing and duplication, with a $50.00 advance to be offset against cost.

27. Sidewalk café permit $100.00 for processing fee, public hearing and initial permit. Thereafter annually the cost will be $25.00 per permit.

28. Summer garden permit - $100.00 for processing fee, public hearing and the initial summer garden permit. Thereafter annually the cost will be $25.00 per permit.

29. Extension of premises permits shall cost $15.00 per event.

30. Change in managing officer application fee. . . . . $40.00.

31. Plat drawing fee . . . . . $100.00.

32. 3:00 a.m. closing application processing fee . . . . . $150.00.

33. Application and placarding fee. . . . . $450.00.

34. Sunday license application $50.00.

35. Five (5) percent Sunday by drink . . . . . $300.00.

36. Microbrewery license . . . . $375.00.

37. Duplicate license . . . . . $20.00.

38. Dishonored check fee . . . . $35.00.

D. The fee for a 3:00 a.m. closing permit shall be two hundred seventy-five dollars ($275.00) per six-month period which amount shall be payable at the time the permit is issued or renewed. An initial 3:00 a.m. closing application fee of one hundred fifty dollars ($150.00) is due when the application is filed. The application fee is to cover the various costs incurred by the City of St. Louis in investigating the approval petitions and processing the applications. This application fee is non-refundable.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.020 License application—Contents.

A. Except as otherwise provided by this chapter and title, no retail license shall be issued to any person until such person files with the Excise Commissioner an application for a license, containing the following: Full name, age, residence, place of birth of the applicant (and if a naturalized citizen, the time and place of naturalization), the length of time he has resided within the state, whether he is a registered voter and assessed taxpaying citizen; whether or not he has ever been convicted of a felony or for a violation of any law regulating, controlling or prohibiting the sale of intoxicating liquor since the adoption of the Twenty-First amendment; whether or not he has ever engaged in the manufacture or sale or distribution of intoxicating liquor, and if so, when, where and the nature of the business; whether or not any distiller, wholesaler, wine maker, brewer, or any employee, officer or agent of any such person has any financial interest or proposes to have any financial interest in the retail business for the sale of intoxicating liquor for which the applicant applies for license; and whether or not any such persons, either directly or indirectly, have loaned, given or furnished, or will give, loan or furnish any equipment, money, credit or property of any kind to the applicant except ordinary commercial credit for liquor or beer sold to the applicant; the names of all persons directly or indirectly interested financially in the proposed business of the applicant; and, also any additional information and supporting proofs deemed necessary by the Excise Commissioner to determine if the applicant meets the requirements of this chapter or title. The application shall be in a form provided by the Excise Division only. Upon filing of an application and payment of an application fee, the Excise Commissioner shall issue notification postcards to the applicant. The applicant must complete a postcard for each address within the petition circle and affix appropriate postage to each and return the postcards to the Excise Division where they will be checked and mailed. Five (5) days after the postcards have been mailed, the applicant may pick up the approval petitions.

B. The Excise Commissioner shall charge each applicant for a retail license a service, processing and an

administration charge of four hundred fifty dollars ($450.00) to cover the cost of additional personnel, equipment and materials made necessary to handle the administration and adjudication of license applications.

C. A person shall be considered to own property within the petition circle if such person is the owner of record in the Office of the Assessor thirty (30) days prior to the date on which an application for a license is requested.

D. The premises for which a retail license has been issued or for which an application for a retail license has been issued shall not be considered within the petition circle.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.030 Persons who own property, reside or conduct business within the petition circle.

For the purposes of this chapter and title:

A. A person shall be considered to reside within the petition circle of a premises for which a retail license has been issued or for which an application for a retail license has been submitted to the Excise Commissioner if: (1) his domicile is within the petition circle; and (2) he is registered to vote from an address within the petition circle on the date on which an application is filed or a protest is initiated, or is able to demonstrate domicile within the petition circle by utility bills at the location or other means determined to be satisfactory by the Excise Commissioner;

B. A person shall be considered to conduct a business within the petition circle if he is engaged in any business or professional activity and if he leases or rents space for such purpose, or owns property used for such purpose, within the petition circle.

Where a corporation is conducting business within the petition circle, the signature of the local managing officer shall, for purposes of this chapter, be considered the signature of a person conducting businesses within the petition circle. The business shall have a valid business or professional service license.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.040 License detrimental to neighborhood—Factors to be considered by Excise Commissioner in making determination.

A. In determining whether issuance, renewal or continuation of a retail liquor license would be detrimental to the neighborhood in which the licensed premises is or would be located the Excise Commissioner shall consider the following factors, giving such weight thereto as he deems appropriate:

1. With regard to applications for issuance of a license and protests against such applications, the character of the neighborhood in which the premises proposed to be licensed are located, with particular consideration being given to the proximity of the proposed licensed premises to parks, churches, schools, playgrounds, residences and hospitals and to other premises licensed pursuant to this chapter or title, and with regard to renewal applications and protests against the renewal or continuation of a license, any changes in the character of the neighborhood since the issuance of the license;

2. Loitering in the immediate vicinity of the licensed premises by persons frequenting the licensed premises;

3. Littering committed by persons frequenting the licensed premises or by the licensee, his agents, servants or employees;

4. Drinking in public by persons frequenting the licensed premises;

5. Lewd and indecent conduct, including but not limited to public urination, exhibited by persons frequenting the licensed premises or by the licensee, his employees, servants or agents, whether such behavior occurs on the licensed premises or in the immediate vicinity thereof;

6. Violation by the licensee, his employees, agents or servants of any state or federal statute or municipal ordinance regulating or relating to sale of intoxicating liquor or nonintoxicating beer;

7. Commission of crimes upon or in the immediate vicinity of a licensed premises by persons frequenting the licensed premises or by the licensee, his employees, servants or agents;

8. Sale, use or possession of illegal drugs upon or in the immediate vicinity of the licensed premises by persons frequenting the licensed premises or by the licensee, his employees, servants or agents;

9. Harassing or intimidating behavior exhibited by persons frequenting or congregating about the licensed premises toward persons living in the neighborhood in which the licensed premises are located or toward persons passing by the licensed premises;

10. Noise associated with operation of the licensed premises or caused by persons frequenting the licensed premises;

11. With regard to applications for issuance of a license and protests against such applications, existing street and sidewalk congestion in the immediate vicinity of the licensed premises, and with regard to renewal applications and protests against renewal or continuation of a license, the street and sidewalk congestion associated with operation of the licensed premises;

12. Complaints on file with the City of St. Louis Citizens Services Bureau regarding the specific location of the retail liquor license where the issuance, renewal or continuation of a license is contemplated.

13. The existence of proper lighting and appropriate parking facilities, or the lack thereof;

14. Other factors which, due to the character of the neighborhood or of the licensed premises or proposed licensed premises, would be relevant to the determination of whether issuance, renewal, or continuation of a license would be detrimental to the neighborhood in which the licensed premises is or would be located.

15. Any use of the premises which is not in compliance with the use of the premises up on which the issuance of the liquor license was based, either in the original license application or pursuant to any subsequent representations made to the Division of Excise at the time of renewal.

B. The Excise Commissioner may find that issuance, renewal or continuation of a license would be detrimental to the neighborhood in which a licensed premise is or would be located without finding that such detriment is or would be due to the fault or negligence, or is or would be the responsibility, of the licensee or applicant. For purposes of this section a person shall be considered to frequent a licensed premise(s) if he patronizes the licensed premises or if he loiters about in the immediate vicinity of the licensed premises but would not do so except for the existence of the licensed premises.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.050 License applications—Neighborhood approval—Exemptions—Petition contents.

A. Except as provided by this chapter or title, no retail license shall be issued to any person who has submitted an application for a license to the Excise Commissioner, unless such person also submits a petition signed by: (1) a majority of the persons owning property within the petition circle and (2) a majority of any combination of the registered voters who reside in the petition circle and those who operate a valid business within the petition circle. With respect to a condominium created under Chapter 448 RSMo 2000 (as amended), "persons" shall mean one (1) head count applied to the applicable unit owners' association's authorized representative and not to each unit owner within the condominium.

B. The provisions of this section shall not apply to an application for: (1) a drink or C.O.L. license for a boat; (2) a picnic license, (3) a license for a premises located in a mall; (4) a full drink Sunday license; (5) special sports stadium license; (6) a ballroom Sunday sales permit; (7) a common eating and drinking area permit; (8) a drink license for a place of entertainment; (9) a Sunday sales permit for a place of entertainment or amusement; (10) a controlled access liquor cabinet system permit; or (11) a temporary catering permit. The Excise Commissioner shall have authority to waive the requirements of this section where the premises for which a license is applied for is owned by a governmental entity or governmental agency.

C. Each neighborhood consent petition form shall contain the following information: (1) the name of the person(s) applying for the license; (2) the address of the premises for which the license is sought; (3) the name under which the licensee shall conduct business at the premises for which an application has been submitted; (4) where the applicant is a corporation, the name of the person who will be the managing officer of the licensed premises if the application is granted; (5) a statement that "the application is on file and may be viewed at the office of the Excise Division"; and (6) such additional information as may be required under the rules and regulations of the Excise Division. No signature appearing on a neighborhood consent petition shall be considered valid unless the name and address of the person who signed the petition is printed on the face of the petition next to his signature. No person is allowed to sign for another person except a trustee, guardian, a person with power of attorney, or other persons authorized by law. The petition shall be on a form provided by the Excise Commissioner.

D. Unless there is good cause shown therefore, if the neighborhood approval petition required by this

section is not filed within forty-five (45) days of receipt of such petition from the Excise Division, the application shall be void.

E. No person shall knowingly accept or offer money or anything of value to another person in exchange for his or her signature.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.055 Activities on licensed premises not limited to those identified on application—Exceptions—Excise commissioner to be notified of new activities to be conducted on licensed premises.

A. A licensee shall not be limited to conducting only such activities on the licensed premises as have been identified on the neighborhood consent petition. However, it shall be a violation for an applicant for a liquor license to intentionally fail to list on the neighborhood consent petition a significant activity which he has plans to engage in at the time the petition application is made.

B. If a licensee intends to conduct a significant activity on the licensed premises which was not listed on the neighborhood consent petition, he shall notify the Excise Commissioner prior to beginning to engage in such activity. If a premises was licensed prior to the effective date of this section, the licensee shall notify the Excise Commissioner whenever he intends to engage in a significant new activity on his licensed premises.

C. Notwithstanding any other provision of this section, the Excise Commissioner shall have discretion to refuse to allow a significant activity to be conducted on a licensed premises if such activity is begun within one (1) year of the initial issuance of the liquor license for the premises in question and if the Excise Commissioner determines such activity is a significant departure from the activities listed on the neighborhood consent petition.

D. As used herein, the term "significant activity" shall include, but not be limited to: operation of more than one (1) pool or billiards table; operation of more than one (1) pinball and/or video game; dancing; presentation of live musical performances; and food service.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.060 License Applications—Notice—Hearings.

A. After the filing of an application for a drink, package or C.O.L. license with the Excise Commissioner, the applicant shall be required to send a postcard addressed to "occupant" at each address within the petition circle of the proposed licensed premises, notifying them that an application has been filed and of the applicant's intent to circulate a neighborhood consent petition. The postcard shall be a preprinted form provided by the Excise Commissioner and shall read substantially as follows:

"_____ has/have applied to the St. Louis Excise Commissioner for a retail liquor license for the premises at _____. The proposed use for these premises will include: _____. Within the next month, a petition in support of the application will be circulated, which you may either sign or refuse to sign. If a public hearing is scheduled notices will be mailed. You may support or protest the application. For information, please contact the Excise Division at 622-4191."

The applicant shall be responsible for placing addresses and postage on the pre-printed postcards and returning them to the Excise Commissioner, who, if satisfied that the applicant has provided cards addressed to occupant at each address within the petition circle, shall cause the post cards to be mailed immediately. The Excise Commissioner shall not provide the applicant with neighborhood consent petition forms, and the applicant may not solicit, or have others solicit, signatures on the neighborhood consent petition, for five (5) days following mailing of the postcards. Upon filing of an application for a liquor license, the Excise Commissioner shall have the premises for which a license is sought posted with a sign which contains substantially the same information as the pre-printed post card.

B. The Excise Commissioner shall fix a date for a hearing on the application which shall be not less than ten (10) days from the date of the filing of the application. However, if the applicant is required to submit a neighborhood consent petition, the hearing shall be held not less than ten (10) days from the date of the filing of such petition with the Excise Commissioner.

C. The Excise Commissioner shall, at least ten (10) days before the date for which such hearing is scheduled, cause to be mailed or delivered to the applicant, to the Alderman of the ward in which the licensed

premises would be located, to the police department, and to all addresses within the petition circle notice of the time, place and date of said hearing. In addition, he shall cause a placard containing the words "HEARING ON LIQUOR LICENSE IN THIS BLOCK," printed in bold black letters at least one and one-half (1½) inches in height, to be placed at each end of the block on the side of the street where the applicant proposes to locate the establishment, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the preceding sentence, the liquor control agent posting the placards shall place the placards in such manner as to give the greatest possible notice to passerby of the hearing on the application. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the name of the applicant, the address of the premises proposed to be licensed, and the type of license applied for. Applicants shall deposit cash or its equivalent with the Excise Commissioner in sufficient amount, as set by said Commissioner, to pay the costs of placarding and mailing required by this subsection. Money deposited with the Excise Commissioner for this purpose shall be deposited by him in a special account established by him for such purpose. Such account shall be held in the name of the Excise Commissioner who shall use the funds held therein only for the purposes specified in this section.

D. At such hearing, the applicant shall be entitled to produce testimony under oath and to be represented by counsel, and the Excise Commissioner shall have the power, on his own motion, to subpoena witnesses and to take testimony under oath pertaining to all matters connected with the application. Any person owning any property, or any persons residing or conducting business, within the petition circle shall have the right to produce witnesses and testimony. The Alderman for the ward in which the licensed premises would be located and the police department shall also have the right to be heard at the hearing. The Excise Commissioner may continue all or part of an application hearing if necessary to conclude the investigation of an application.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.070 License approval—Generally.

If, after holding a hearing on an application for a drink, package or C.O.L. license, the Excise Commissioner shall find that the applicant meets all requirements of this title, and if the Excise Commissioner shall further find that the applicant plans and proposes to conduct a retail liquor business in compliance with the laws of the state and with this chapter and title, then the Excise Commissioner may approve the issuance of a license to the applicant, permitting him to conduct such business for a period of one (1) year from the date of issuance of the license, unless the license is revoked or cancelled for cause before the expiration of such time. If the Excise Commissioner denies an application for a license for a proposed licensed premises following a protest, he shall not consider another application for a license for such premises for a period of six (6) months from the date on which the application was denied. If the Excise Commissioner denies an application for a proposed licensed premises for failure to satisfy the requirements of the application, but not pursuant to a protest, then the same applicant shall not eligible for a license for a minimum of sixty (60) days.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.080 License approval—Discretion of Excise Commissioner.

A. In determining whether to approve issuance of a retail license to a person applying therefor, the Excise Commissioner shall consider whether issuance of such license would be detrimental to the neighborhood in which the licensed premises would be located.

B. If an applicant files an application seeking issuance of a license for premises which were licensed pursuant to the provisions of this chapter or title at any time during the two-year period immediately preceding the date on which such application was filed, then the Excise Commissioner shall, in determining whether the issuance of a license for such premises would be detrimental to the neighborhood in which the licensed premises would be located, take into account the previous operation and conduct of, and circumstances at, such premises; however, the Excise Commissioner shall not consider liquor law violations committed by a former licensee or employees of a former licensee, except as provided by the provisions of Chapter 14.06 of this title. If an applicant possesses a liquor license for premises other than the premises for which he has submitted an application then the Excise Commissioner, in determining whether issuance of the license applied for would be detrimental to the neighborhood in which the proposed licensed premises would be located, shall consider the factors enumerated in Section 14.08.040 with

regard to operation and conduct of and conditions existing at such other premises, to the extent that such factors are relevant to consideration of the manner in which the premises proposed to be licensed would be operated.

C. Whenever the Excise Commissioner makes a decision to approve or deny an application for a drink, package or C.O.L. license he shall notify the Alderman of the ward in which the proposed licensed premises would be located of his decision. Thereafter the Alderman may file written objections to the decision of the Excise Commissioner, setting forth specific reasons for said written objections, which objections shall be included in the file of the applicant. Nothing herein contained shall prevent the Excise Commissioner from exercising the authority granted to him by this section.

D. Other provisions of this chapter and title notwithstanding, the Excise Commissioner shall have discretion, in approving issuance of a picnic license, to waive any and all provisions relating to application requirements other than fees and requirements relating to moral character.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.090 License renewal applications— When— How made.

A. The provisions of Sections 14.08.040 through 14.08.080 shall not apply to applications for renewal of a license made pursuant to the provisions of subsection B of this section.

B. Not later than the date of expiration of a license issued pursuant to the provisions of this chapter or title, nor more than two (2) weeks prior to such date, a licensee may submit an application for renewal of such license. The Excise Commissioner may waive this time limitation for good cause shown. In order to make an application for renewal of a license the licensee, or the managing officer of the licensee if the licensee is a corporation, must appear in person at the office of the Excise Commissioner and submit proof that the licensee has paid all taxes which are due, or payable, to the City of St. Louis, the Collector of Revenue, or License Collector, from the licensee to the City as a result of operation of the licensed premises, together with a completed copy of the renewal form promulgated by the Excise Commissioner. If the licensee is a partnership, one (1) partner must appear personally before the Excise Commissioner and must submit, in addition to proof that all taxes due as a result of operation of the licensed premises have been paid to the City, proof that each partner has paid all taxes due the City from him. If the licensee is a corporation, the managing officer must submit proof that he has paid all taxes due to the City from him personally.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.100 Renewal of licenses—Discretion of Excise Commissioner—Suspension or extension in certain circumstances.

In determining whether to approve the renewal of a retail license for which a renewal application has been submitted the Excise Commissioner may, on his own motion, call a hearing to determine whether renewal of the license would be detrimental to the neighborhood wherein the licensed premises is located. If the Commissioner calls such a hearing he shall comply with the notice provisions contained in subsection B of Section 14.08.060. However, all notices required by this section shall specify that the hearing has been called to consider whether renewal of the license in question would be detrimental. The procedure established by subsection C of Section 14.08.060 shall apply to hearings held pursuant to this section.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.110 Protests against licenses or applications—When and how initiated.

A. A protest against issuance, renewal or continuation of a package, drink or C.O.L. license or 3:00 a.m. closing permit shall be initiated by submission to the Excise Commissioner of a Liquor Letter of Protest Petitions signed by either ten (10) or more persons residing or conducting business, or ten (10) or more persons owning property, within the petition circle of the liquor establishment which is the subject of the protest. The Liquor Letter of Protest Petitions must also state the specific reason(s) for the protest. If there are less than twenty (20) property owners within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of property owners within the petition circle. If there are less than twenty (20) persons residing or conducting business within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of the persons residing or conducting business within the petition circle. Such letter shall contain the name and

address of the licensed premises or proposed licensed premises which is the subject of the protest, the type of license being protested, and the name of the person who shall serve as the protest representative. Upon verifying that there are sufficient signatures on the protest letter to initiate a protest, the Excise Commissioner shall issue protest petitions to the protest representative. He shall also notify the licensee or applicant whose license or application is the subject of the protest, the Alderman for the ward in which the licensed premises is or would be located and the Police Department that a protest has been initiated against the license or application. Such notice shall contain an explanation of the protest procedures as established by this chapter and title, and by the rules and regulations of the Excise Commissioner. If the protest is against renewal or continuation of a license notice shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Excise Commissioner. A protest may be initiated against issuance or renewal of a 3:00 a.m. closing permit held or applied for by a licensee without a protest also being initiated against the full drink license held by such licensee.

B. A protest shall not be initiated against renewal of a package, drink or C.O.L. license or a 3:00 a.m. closing permit more than forty-five (45) days, nor less than fourteen (14) days, prior to the date on which the existing license for the premises which is the subject of the protest is scheduled to expire. A protest may be initiated against continuation of a license at any time during the term of the license, however, any protest letter submitted to the Excise Commissioner less than forty-five (45) days prior to the date on which the existing license for the premises which is the subject of the protest is scheduled to expire shall be treated as a protest against renewal of the license. A protest may be initiated against an application for issuance of a license at any time up to the time set by the Excise Commissioner, pursuant to the provision of Section 14.08.060, for the hearing on such application. The application hearing shall not be postponed because of the filing of a protest against such application; however, the Excise Commissioner shall make no decision concerning whether to issue the license applied for until after the conclusion of the protest hearing provided for by the provisions of Section 14.08.130. No protest may be initiated against the continuation of a retail license for a period of six (6) months after the Excise Commissioner has denied, after a hearing, a previous protest against such license.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.120 Protest petitions—Contents—Time for collection of signatures.

A. The Excise Commissioner shall promulgate a protest petition form. There shall be a heading on each page of the petition which shall: (1) identify by trade name and address the licensed premises or proposed licensed premises which is the subject of the protest; (2) give the name of the licensee or applicant; (3) state that persons signing the petition are supporting the protest filed against the license or application of the licensee or applicant for the premises named on the petition; and (4) contain such additional information as may be required under the rules and regulations of the excise division. No signature appearing on a protest petition shall be considered valid unless the name and address of the person who signed the petition is printed on the face of the petition next to his signature.

B. The Excise Commissioner shall not, except for good cause shown, accept any protest petition submitted to him more than thirty (30) days from the date on which he issued the protest petitions to the protest representatives; except that where the thirtieth day after the date on which the protest petitions were issued falls on a Saturday, Sunday or holiday, the Excise Commissioner shall accept protest petitions filed on the next working day thereafter.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.130 Hearing on protest—Notice—Procedure.

A. After the last date on which protest petitions may be submitted, the Excise Commissioner shall fix a date for a hearing on the protest. Such hearing shall be held not less than twenty (20), nor more than thirty (30), days following the last date on which protest petitions may be submitted. The Excise Commissioner shall have power to continue the hearing for good cause. The Excise Commissioner shall not schedule a hearing for a protest against continuation of a license, and shall summarily dismiss such protest, where no protest petitions are submitted to him prior to the

closure date for submission of protest petition B. The Excise Commissioner shall, at least ten (10) days prior to the date on which the protest hearing is scheduled, cause notice of the time, place and date of the hearing to be served on the licensee or applicant whose license or application is the subject of the protest. If the protest is against renewal or continuation of a license, notice of the protest hearing shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Excise Division. The Excise Commissioner shall also, at least ten (10) days prior to the date on which a protest hearing is scheduled, cause notice of the time, place and date of such hearing to be served upon the protest representative, the Alderman of the ward in which the licensed premises is or would be located, and the Police Department. Service of the notice upon the protest representative shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the protest representative on the written letter of protest. In addition, the Excise Commissioner shall cause a placard containing the words "HEARING ON PROTEST AGAINST LIQUOR LICENSE IN THIS BLOCK," printed in bold black letters at least one and one-half (1½) inches in height, to be placed at each end of the block on the side of the street where the licensed premises or the proposed licensed premises which are the subject of the protest hearing is or would be located, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the previous sentence, the liquor control agent posting the placards shall place the placards in such manner as to give the greatest notice to passersby of the protest hearing. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the trade name and address of the licensed premises or premises proposed to be licensed, the name of the licensee or applicant whose license or application is the subject of the protest, and the type of license which is the subject of the protest. Neither the protest representative nor anyone else signing a protest letter or petition shall be liable for the costs of said placarding.

C. At the protest hearing, both the protest representative and the licensee or applicant whose license or application is the subject of the protest shall be entitled to produce testimony under oath and to be represented by counsel, and the Excise Commissioner shall have the power, on his own motion, to subpoena witnesses and to take testimony under oath pertaining to all matters connected with the protest. The Alderman for the Ward in which the premises which is the subject of the protest is located, together with the police department, shall have the right to be heard at the hearing.

D. The protest hearing shall be a bifurcated proceeding. During the first phase of the hearing, the Excise Commissioner shall consider evidence concerning whether the protest petitions submitted to him contain the signatures of a valid majority of either: (1) persons residing or conducting business within the petition circle of the licensed premises or proposed licensed premises which is the subject of the protest; or (2) persons owning property within said petition circle. The Excise Commissioner shall also consider during the first phase of the hearing any testimony offered concerning the sufficiency of the written protest letter which initiated the protest, including, but not limited to, evidence concerning whether the letter contained sufficient signatures to initiate the protest. After conclusion of the first phase of the hearing the Excise Commissioner shall make a decision as to whether the protest petitions submitted to him contain a valid majority of either persons residing or conducting business, or persons owning property within the petition circle. He need not, prior to initiation of the second phase of the hearing, make any determination as to the sufficiency of the written protest letter. During the second phase of the hearing, the Excise Commissioner shall consider evidence concerning whether issuance, renewal or continuation of the license which is the subject of the protest would be detrimental to the neighborhood in which the licensed premises is or would be located.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.140 Protests—Necessity of majority of signatures on petition protesting continuation of license—Effect of majority of signatures on petition protesting a license application.

A. A protest against continuation of a license may only be sustained by the Excise Commissioner if

the protest petitions submitted to him to protest such continuation contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle. If, after the first phase of the hearing is completed, the Excise Commissioner determines that the protest petitions submitted to him in protest of the continuation of a license contain the signatures of neither a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest nor a majority of the persons owning property within such petition circle then he shall deny the protest and shall not consider evidence of whether continuation of the license would be detrimental to the neighborhood in which the licensed premises is located.

B. If the Excise Commissioner determines, after the first phase of the hearing is completed, that protest petitions submitted to him to protest an application for a license contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the proposed licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle, then the Excise Commissioner shall sustain the protest and refuse to grant the license applied for, regardless of any evidence concerning detriment to the neighborhood.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.150 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.

A. If the Excise Commissioner determines after the first phase of the protest hearing that the protest petitions submitted to him contain the signatures of either: (1) a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest; or (2) a majority of the persons owning property within such petition circle, he shall sustain the protest unless the licensee shows by a preponderance of the evidence submitted at the hearing that renewal or continuation of the license would not be detrimental to the neighborhood in which the licensed premises is located. If the Excise Commissioner determines after the first phase of the protest hearing that the protest petitions submitted to him do not contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle, he shall deny the protest, unless the protestors show by a preponderance of the relevant evidence submitted at the hearing that issuance or renewal of the license would be detrimental to the neighborhood in which the licensed premises is or would be located.

B. If the Excise Commissioner sustains a protest against issuance of a license he shall refuse to grant such license to the person applying therefor. If he sustains a protest against renewal of a license such license shall not be revoked, but the Excise Commissioner shall refuse to renew such license after it expires. If the Excise Commissioner sustains a protest against continuation of a license he shall cancel such license effective one (1) month after any decision is filed upholding such protest. If the license expires by operation of law before it can be canceled it shall not be renewed.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.160 Extension of protested license.

Where a protest has been filed against continuation or renewal of a license and the license expires prior to a decision by the Excise Commissioner on the protest, the Excise Commissioner shall grant an extension of the license. If the Excise Commissioner sustains a protest, the extension shall expire on the date on which the decision on the protest is issued.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.170 Submission and withdrawal of signatures from consent or protest petitions.

Any person who has signed a neighborhood approval petition circulated by or on behalf of a licensee or applicant or a protest petition for the same premises may withdraw his signature from either petition by submitting a letter to the Excise Commissioner up to, and including, the date set for the hearing requesting withdrawal on the protest or by requesting withdrawal in person at the hearing.

If a person signs both a neighborhood approval petition and a protest petition and does not request that his signature be withdrawn from one (1) or the other then his signature shall not be counted for or against the application. The Excise Commissioner may also delete a signature from either a protest or neighborhood approval petition if he finds, based upon a pre-

ponderance of evidence, at the hearing that the circulator of a petition threatened or coerced such person or that the circulator made a material misrepresentation of fact concerning the licensed premises or proposed licensed premises to such person.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.180 Common eating and drinking area—Permit—Sale of drinks for consumption.

A. Upon application in a form acceptable to the Excise Commissioner, he may issue a common eating and drinking area permit for a specified area, provided that such area meets the criteria for a common eating and drinking area set out in Section 14.01.080 of this chapter and title. Such permit shall be issued without charge and shall remain in force unless cancelled or revoked by the Excise Commissioner.

B. If the terms of a drink licensee's lease require payment by the licensee of a common area maintenance charge for a common eating and drinking area, any intoxicating liquor or nonintoxicating beer sold on the premises for which the licensee possesses a license may be consumed in such common eating and drinking area.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.190 Motor vehicle service stations.

A. Any licensee engaged in the motor vehicle service station business who currently possesses a valid City of St. Louis three and two-tenths (3.2) percent motor vehicle service station retail package license may, upon expiration of such license, apply for a five (5) percent package license without having to submit a complete new application or a neighborhood consent petition. Upon receipt of such application, the Excise Commissioner shall approve issuance of a five (5) percent package license to such a licensee, unless he would have cause to deny renewal of the three and two-tenths (3.2) percent motor vehicle service station retail package license to said licensee.

B. After the effective date of the ordinance codified in this chapter, no person, firm, or corporation operating a motor vehicle service station shall be issued a five (5) percent package license for a premises which was not licensed for sale of intoxicating liquor or nonintoxicating beer on the effective date hereof, unless the proposed licensed premises will comply, at the time the license would be issued, with the provisions of Section 14.06.250 hereof.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.200 Summer garden/sidewalk café.

A. Notwithstanding any other provisions of this chapter and title, upon application by a person to whom a drink or C.O.L. license has been issued, the Excise Commissioner may issue a permit to allow the licensee to maintain, in connection with and adjoining the licensed premises, an open air space, commonly called a summer garden or sidewalk café, for serving or consuming intoxicating liquors and/or nonintoxicating beer. No permit shall be issued for a summer garden unless at least one (1) side of the summer garden adjoins a public street, alley, or highway and is so fenced and equipped as to permit an unobstructed view of the summer garden from the street, alley or highway. The Excise Commissioner shall not issue a permit for a sidewalk café, any portion of which is located upon a public right of way, unless the licensee has first procured an encroachment permit from the Board of Public Service. Such permit shall have a one-time application fee of one hundred dollars ($100.00) to cover the various cost incurred by the City of St. Louis in investigating, placarding and processing the application. The application fee is non-refundable. The annual renewal cost will be twenty-five dollars ($25.00) per year. All currently licensed establishments are exempt from the application fee, but are responsible for the renewal fee. Such permits may be revoked or suspended for cause by the Excise Commissioner. A licensee or applicant for a drink license may apply for a summer garden/sidewalk café permit at any time. A summer garden/sidewalk café permit shall expire on the date that the underlying drink license expires and shall thereafter be renewable at the time of the renewal of the drink license.

B. Applications for issuance of a summer garden/sidewalk café permit shall be made in a form acceptable to the Excise Commissioner. An applicant for a summer garden/sidewalk café permit shall not be required to file a neighborhood consent petition. The Excise Commissioner shall, upon receipt of an application for a summer garden/sidewalk café permit, fix a date for a hearing on the application which shall not be less than ten (10) days from the date of filing of such application. Where an application for a summer garden/sidewalk café permit is made at the same time as the applicant applies for a drink license, the hearing on the summer garden/sidewalk café permit shall be combined with the hearing on the license application. At least ten (10) days before the date on which the hearing on the permit is scheduled, the Excise Commissioner shall cause to be

mailed or delivered to the applicant, the Alderman of the ward in which the licensed premises is or would be located, and the Police Department notice of the time, place and date of the hearing. In addition he shall cause a placard containing the words "HEARING ON SUMMER GARDEN PERMIT IN THIS BLOCK" or "HEARING ON SIDEWALK CAFÉ PERMIT IN THIS BLOCK," whichever is appropriate, printed in bold black letters at least one and one half (1½) inches in height, to be placed at each end of the block on the side of the street where the applicant proposes to locate the establishment, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the preceding sentence, the liquor control agent posting the placards shall place the placards in such manner as to give the greatest notice to passersby of the hearing on the application. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the name of the applicant and the address of the premises for which the permit is proposed. An applicant for a summer garden/sidewalk café permit shall be required to pay the fee specified in Section 14.08.010(B), At the hearing required by this subsection, any interested party may present evidence as to why issuance of a summer garden/sidewalk café permit would or would not be detrimental to the neighborhood. In determining whether to issue a summer garden/sidewalk café permit to an applicant therefor, the Excise Commissioner shall consider whether issuance of such permit would be detrimental to the neighborhood in which the licensed premises is or would be located. Unless the Excise Commissioner determines that a summer garden/sidewalk café permit would be detrimental to the neighborhood, he shall issue such permit, provided that the requirements of subsection A of this section have been complied with by the applicant.

C. Not later than the date of expiration of a summer garden/sidewalk café permit, nor more than two (2) weeks prior to such date, a licensee may submit an application for renewal of such permit on a form acceptable to the Excise Commissioner. The Excise Commissioner may waive this time limitation for good cause shown. In determining whether to renew a summer garden/sidewalk café permit, the Excise Commissioner shall have the same discretion as provided by Section 14.08.100 with regard to renewal of liquor licenses.

D. Renewal or continuation of a summer garden/sidewalk café permit may be protested without a protest being filed against the underlying liquor license. Such protest shall be made in the same manner as is provided by this chapter and title for protest of renewal or continuation of a retail liquor license.
(Ord. No. 71819, § 9, 4-16-2024.)

14.08.210 Controlled access liquor system.

A. Notwithstanding any other provision of this chapter and title to the contrary, any person who operates a qualified establishment and who is licensed to sell liquor by the drink at retail with respect to such qualified establishment, may apply or and be issued a license to sell intoxicating liquor in the rooms of such qualified establishment by means of a controlled access liquor cabinet system on and subject to the following terms and conditions:

1. The key, magnetic card or other similar device required to attain access to the controlled access liquor cabinet in a particular room may be provided only to each adult registered guest who is registered to stay in such room;

2. Prior to providing a key, magnetic card or other device required to attain access to the controlled access liquor cabinet in a particular room to the registered guest, the licensee shall verify that each such registered guest to whom such key, magnetic card or similar device is to be provided is not a minor.

3. All employees handling the intoxicating liquor to be placed in the controlled access liquor cabinet, including without limitation any employee who inventories and/or restocks and replenishes the intoxicating liquor in the controlled access liquor cabinet, shall be at least eighteen (18) years of age;

4. Registered guests may use the key, magnetic card or other similar device required to attain access to the controlled access liquor cabinet in such registered guest's room at any time; provided, however, that no controlled access liquor cabinet may be restocked or replenished with intoxicating liquor, nor shall any intoxicating liquor be delivered to a room in order to restock or replenish the supply of intoxicating liquor in the controlled access liquor cabinet, at any time when the restaurant operated at the qualified establishment is not permitted to sell liquor by the drink at retail pursuant to the provisions of this chapter or title;

5. Upon request from the registered guest at any time, the qualified establishment shall cause all intoxi-

cating liquor to be removed from the controlled access liquor cabinet in the room of such registered guest as soon as reasonably practicable; and

6. The qualified establishment shall have the right to collect payment for the intoxicating liquor or other beverages or food taken from the controlled access liquor cabinet in the room of a registered guest in such manner as it shall determine to be appropriate, including without limitation the inclusion of such charges together with the charges made to such registered guest for the use of the room or for purchase of meals at the restaurant operated at such qualified establishment.

B. Any new qualified establishment having been in operation for less than ninety (90) days may be issued a temporary license to sell intoxicating liquor in the rooms of such qualified establishment by means of a controlled access liquor cabinet system for a period not to exceed ninety (90) days if such establishment can show a projection of an annual business from prepared meals or food which would exceed not less than one hundred thousand dollars ($100,000.00) per year.

C. Notwithstanding any other provision of this chapter and title, a duly licensed wholesaler shall be permitted to sell intoxicating liquor to a qualified establishment in any size of qualified packages or containers for use in a controlled access liquor cabinet system; provided, however, that as to any size of qualified packages or containers which could not be legally sold to the qualified establishment except for the provisions of this section, any such size of qualified packages or containers shall be sold by the qualified establishment only by means of the controlled access liquor cabinet system.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.220 3:00 a.m. closing permit—Issuance—Conditions—Exemptions.

A. No "3:00 a.m. closing permit" shall be issued to any person unless such person possesses a full drink liquor license, and until the following conditions have been met and complied with:

1. The applicant shall file with the Excise Commissioner an application for a permit setting forth:

a. The location of the premises;

b. The total annual gross sales;

c. If a hotel or resort, the total number of rooms available for transient guests; and

d. Such additional information and supporting proofs as deemed necessary by the Excise Commissioner.

B. The Excise Commissioner shall be responsible for the issuance of the "3:00 a.m. closing permit," and for insuring that all permit holders comply fully with all the terms and conditions under which such a permit may be issued.

C. The Excise Commissioner may approve the issuance of a "3:00 a.m. closing permit" to any applicant:

1. Possessing a full drink liquor license;

2. Whose premises are located within a convention trade area; and

3. Who meets at least one of the following conditions:

a. The licensed establishment's annual gross sales for the year immediately preceding the date on which the application for a 3:00 a.m. closing permit was filed equal one hundred fifty thousand dollars ($150,000.00) or more, or

b. The business is a resort.

D. In addition, any applicant for a 3:00 a.m. closing permit for premises located other than in a mall or a resort shall present to the Excise Commissioner a petition indicating approval of the issuance of a "3:00 a.m. closing permit" signed by a majority of the persons residing or conducting any business within the petition circle of the licensed premises and a majority of persons owning property within such circle.

E. Notwithstanding any other provision of this section, the Excise Commissioner shall not issue a 3:00 a.m. closing permit for licensed premises located on or within a resort where there is a direct entrance to such licensed premises which opens onto a public street, alley or sidewalk, unless the licensee has submitted to the Excise Commissioner a petition indicating approval of the issuance of a 3:00 a.m. closing permit signed by a majority of persons residing or conducting any business within the petition circle of the licensed premises and a majority of persons owning property within such circle.

F. Notwithstanding any other provision of this chapter or title, a licensee to whom a 3:00 a.m. closing permit has been issued shall not allow intoxicating liquor or nonintoxicating beer to be sold or consumed on any portion of the premises permitted as a summer garden or sidewalk café between the hours of 1:30 a.m. and 10:00 a.m.

G. Notwithstanding any other provision of this chapter or title, no "3:00 a.m. closing permit" shall be issued to any person or business for premises which is not a resort located within the following areas:

Beginning at the point of intersection of the east side of Kingshighway Boulevard and the south side of Washington Avenue, hence running east along the south side of Washington Avenue to the west side of Taylor, hence running south along the west side of Taylor to the north side of the Forest Park Expressway, hence west along the north side of the Forest Park Expressway, to the east side of Kingshighway Boulevard, hence north along the east side of Kingshighway Boulevard back to the point of beginning.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.230 Temporary catering permits.

A. The Excise Commissioner may issue temporary catering permits. A temporary catering permit can only be issued to a holder of a drink license and shall authorize the sale or consumption of liquor by the drink on the premises for which a permit is issued at a particular function, occasion or event at a particular location other than the licensed premises for a period not to exceed one hundred sixty-eight (168) consecutive hours.

The applicant must submit a signed application on a form provided by the Excise Commissioner along with a bank draft, money order or cashier's check payable to the City of St Louis, Excise Division. The licensed caterer shall report, in writing, the location, description of the premises, and the date(s) of each function at least five (5) business days in advance to the Excise Commissioner along with a written permission letter from the property owner. The temporary caterer's permit does not allow wholesalers to provide customary storage or cooling equipment for use by the permit holder at the temporary location. The Excise Commissioner shall issue no more than seven (7) temporary catering permits to a single venue over the course of one (1) year. The fees are non-refundable.

B. A temporary catering permit shall only authorize the sale of alcohol during the same hours in which the holder of a full drink license is authorized to sell alcohol, except that a person possessing a temporary catering permit for a Sunday may sell alcohol during the same hours in which the holder for a full drink Sunday license is authorized to sell intoxicating liquor. It shall be a violation for a person to whom a temporary catering permit has been issued to sell alcohol in the original package for consumption off of the premises where sold.

C. Issuance of a temporary catering permit shall be entirely discretionary on the part of the Excise Commissioner and shall be based on his independent review of the facts of each application. Such permit may be summarily revoked by the Excise Commissioner upon a finding by him that a liquor law violation has been committed by the permit holder or by others upon the premises for which the permit was issued or upon a finding that the permit is detrimental to the neighborhood in which the permitted premises are located.

(Ord. No. 71819, § 9, 4-16-2024.)

14.08.235 Annual caterers permit.

The Excise Commissioner may issue annual caterers permit for either (1) a maximum of fifty (50) days or (2) an unlimited number of function and days. An annual caterer's permit can only be issued to a holder of a drink license and shall authorize the sale or consumption of liquor by the drink on the premises for which a permit is issued for particular functions, occasions or events at particular locations other than the licensed premises. The applicant shall submit a signed application on a form provided by the Excise Commissioner along with a bank draft, money order or cashier's check payable to the City of St Louis, Excise Division. The licensed caterer shall report, in writing, the location, description of the premises, and the date(s) of each function at least five (5) business days in advance to the Excise Commissioner along with a written permission letter from the property owner. The annual caterer's permit does not allow wholesalers to provide customary storage or cooling equipment for use by the permit holder at the temporary location. The fees are non-refundable.

(Ord. No. 71819, § 9, 4-16-2024.)

Title 15

PUBLIC PEACE, MORALS AND WELFARE

Chapters:

Division I. Offenses Against Public Officers and Government

15.02 Bribery
15.04 Failure to Obey Subpoena
15.06 False Alarms and Reports
15.07 Automatic Dialer Alarm System
15.08 Impersonation of Officers
15.10 Resisting Arrest
15.12 Police Animals
15.13 Neighborhood Protection Order
15.14 Whistleblower Law

Division II. Discrimination

15.18 Discrimination Practices
15.19 Institutional Vandalism and Bias Crimes
15.20 City Leases
15.21 Discrimination Based Upon Hairstyle, Protective Hair, or Natural or Cultural Hair Texture or Style

Division III. Offenses Against Public Decency

15.22 Reserved
15.28 Human Endurance Contests
15.30 Indecent and Lewd Conduct and Books
15.32 Obscenity
15.34 Prostitution
15.38 Spitting
15.39 Public Urination and Defecation

Division IV. Offenses Against Public Peace

15.42 Public Nuisances
15.44 Aggressive Begging
15.46 Disturbances
15.48 Reserved
15.49 Curfew for Prather, Devonshire and Nottingham Avenues
15.50 Noise
15.51 Industrial Noise
15.52 Unlawful Assemblies
15.54 Unlawful Conduct at Athletic Events
15.55 Crossing Barricade or Police Line
15.56 Unlawful Conduct Involving Labor Disputes
15.58 Reserved
15.59 Merchandise From Motor Vehicles

Division V. Offenses Against Property

15.60 Stealing
15.62 Petty Larceny
15.64 Burglar Tools
15.66 Dealing in Stolen Property
15.68 Injury to Plants and Flowers
15.70 Removal of Grocery Carts
15.72 Protection of Library Property
15.74 Trespassing
15.76 Unlawful Removal of Tires and Tubes
15.77 Graffiti
15.78 Vandalism
15.79 Intentional Defacement of Buildings
15.80 Dumping Waste Materials
15.82 Fireworks
15.83 Offenses Against the Motor Vehicles of Others

Division VI. Consumer Protection

15.84 Advertising
15.86 Reserved
15.88 Motor Vehicle Sales
15.90 Real Estate Advertising

15.92 Real Estate Title Certificate
15.94 Soliciting Passengers or Baggage
15.96 Solicitation of Customers From Competitive Stores
15.98 Unlawful Sale of Ads and Listings
15.100 Reserved

Division VII. Offenses By or Against Minors

15.106 Abandoned Ice Boxes
15.108 Contributing to the Delinquency of a Child
15.110 Curfew
15.111 Entertainment Area Curfew
15.112 Disruption of School or Travel
15.114 Liberties with Minors
15.116 Liquor and Beer Offenses Involving Minors
15.117 Fake Identification
15.118 Minors Operating Pinball Machines
15.120 Parental Duty
15.121 Harboring Minors
15.122 Renting Rooms to Minors
15.124 Tattooing, Branding or Body Piercing Minors
15.126 Publications
15.128 Graffiti Tools
15.129 Unattended Children in Motor Vehicles

Division VIII. Weapons

15.130 Carrying Weapons
15.131 Concealed Firearms
15.132 Firearms Use Restricted
15.133 Firearms Left in Unattended Vehicles
15.134 Use, Purchase or Possession of Certain Weapons by Minors
15.135 Projectile Weapons
15.136 Martial Arts Weapons
15.137 Concealed Carry of Firearms
15.138 Unlawful Open Carry of a Weapon
15.139 Unlawful Discharge of a Firearm

Division IX. Miscellaneous Offenses and Regulations

15.140 Beekeeping
15.142 Reserved
15.144 Railroads
15.146 Seats for Female Employees
15.148 Assembly Room Records
15.150 Electric Storage Batteries
15.152 Deeds Law
15.154 Straw Party Registration and Control Law
15.155 Kites
15.156 Yard Sales
15.157 Residential Real Estate Open House Signs
15.158 Conduct at Strike
15.159 Scrap Metal
15.160 Building Service Employees
15.165 Cyber Harassment
15.170 Minimum Wage
15.175 Discrimination Based on Health Decisions or Pregnancy
15.180 Tampering With a Witness or Victim
15.185 Use of Force Policy
15.186 Identification Requirements of Police Officers
15.190 Commercial Use of Drones
15.192 Surveillance Technology Usage

DIVISION I. OFFENSES AGAINST PUBLIC OFFICERS AND GOVERNMENT

Chapter 15.02

BRIBERY

For other provisions of bribery of public officers and employees, see § 4.02.010.

Sections:

15.02.010 Penalty for violation.

15.02.020 Reward—Conviction of employee or officer.

15.02.030 Reward—Conviction of bribery.

15.02.010 Penalty for violation.

Every person who shall directly or indirectly give, offer any money, goods, right in action or any other valuable consideration, gratuity or reward, or any promise undertaking or security therefor, to any public officer of the City, or City employee:

A. With intent to influence his vote, opinion, judgment or decision on any question, matter, election,

appointment, cause or proceeding which may be then pending, or may by law be brought before him in his official capacity or to induce him to neglect or omit performance of any official duty, or to perform such duty with partiality or favor, or otherwise than is required by law; or

B. In consideration that any such public officer or employee has given any vote, opinion, judgment or decision in any particular manner, or for any particular person, or upon any particular side, or more favorable to one side than the other, in any matter, question, election, cause or proceeding, or has omitted to perform any official act or duty, or has performed such act or duty with partiality or favor, or in anywise contrary to law;

shall be guilty of bribery, and be punished by imprisonment in the City Jail or workhouse for not more than six months or by a fine of not less than two hundred dollars nor more than five hundred dollars or by both such fine and imprisonment. (1994 C., § 15.02.010; Ord. No. 52500, § 1, 1964.)

RSMo:

RSMo Ch. 576 (2016) Offenses Affecting Government

City Counselor Ops.: 9385, 9924

15.02.020 Reward—Conviction of employee or officer.

A reward up to and including five hundred dollars, will be awarded to any person who has supplied accurate information or evidence leading to the conviction and discharge of any employee or official of the City where the employee or official was found guilty of soliciting, accepting a bribe, or having been offered a bribe and failed thereafter to report same to the proper authority, or in any way was corruptly involved in a bribe involving the City. (1994 C., § 15.02.020; Ord. No. 56940, § 1, 1975.)

RSMo:

RSMo 576.020 (2016) Public servant acceding to corruption

RSMo 576.040 (2016) Official misconduct

McQuillin:

12.241 Solicitation or acceptance of a bribe by an officer

15.02.030 Reward—Conviction of briber.

The same reward as named in Section 15.02.020 is to be awarded to any person who has supplied accurate information or evidence that leads to the arrest and conviction of any individual or group of individuals who attempts to bribe or offers a bribe to an employee or official of the City. (1994 C., § 15.02.030; Ord. No. 56940, § 2, 1975.)

Chapter 15.04

FAILURE TO OBEY SUBPOENA

Sections:

15.04.010 Misdemeanor declared.

15.04.010 Misdemeanor declared.

Every person who shall have been personally served in the City with a subpoena, issued by any board or officer of the City, having the power and authority to issue such subpoena, commanding the attendance of such person or the production of any books, papers or documents, who shall fail or refuse without reasonable and legal excuse to attend at the time and place therein specified or who shall fail or refuse without reasonable and legal excuse to produce the books, papers and documents therein specified, or who being present, shall fail or refuse, without reasonable and legal excuse to testify fully as to his knowledge concerning the matters and things then being lawfully investigated by such board or officer, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 75; 1960 C., § 794.010; 1994 C., § 15.04.010.)

Chapter 15.06

FALSE ALARMS AND REPORTS

Sections:

15.06.010 Violations of laws.

15.06.010 Violations of laws.

Any person who shall knowingly and intentionally, in this City, make a false report of a violation of the law to any police officer or other officer of the law in person, or from any police alarm or call box, or over the telephone or radio, or by any other means of communication, whatsoever, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 23; 1960 C., § 786.010; 1994 C., § 15.06.010.)

Cases:

In prosecution for falsely reporting alleged robbery to police, the corpus delicti was the alleged falsity of the robbery report. *City of St. Louis v. Watters,* 289 S.W. 2d 444 (1956).

RSMo:

RSMo 575.080 (2016) False reports

McQuillin:

27.46 Evidence as to false alarms

Chapter 15.07

AUTOMATIC DIALER ALARM SYSTEM

Sections:

15.07.010 Definitions.

15.07.020 Limitations on automatic dialer alarm systems.

15.07.030 Violation—Penalty.

15.07.010 Definitions.

As used in this chapter:

A. "Automatic dialer alarm system" shall mean any alarm device which automatically dials the telephone number of Police Department, Fire Department, or emergency medical service and uses a pretaped or prerecorded message to alert one or more of these departments that an emergency exists or that the services of one or more of these departments are needed.

B. "9-1-1" shall mean the telephone number dialed to use the Expanded 911 Universal Emergency Number Service provided by Southwestern Bell Telephone Company to the City. (1994 C., § 15.07.010; Ord. No. 58144, § 1, 1980.)

15.07.020 Limitations on automatic dialer alarm systems.

No person shall use, operate or install any device that will, upon activation by automatic means, initiate the dialing, calling or other connection with the Expanded 911 Universal Emergency Number Service in the City. (1994 C., § 15.07.020; Ord. No. 58144, § 2, 1980.)

15.07.030 Violation—Penalty.

Any person, corporation, or other legal entity which violates any of the provisions of this chapter or participates in the violations of its provision, shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than five dollars ($5.00) and not more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 15.07.030; Ord. No. 58144, § 3, 1980.)

Chapter 15.08

IMPERSONATION OF OFFICERS

Sections:

15.08.010 Badges—Wearing—Display.

15.08.020 Badges—Sale.

15.08.030 Impersonation of officer.

15.08.010 Badges—Wearing—Display.

It is unlawful for any person, without being authorized to do so, to wear, display or have on his person, any badge, shield, button, pin or other emblem, which purports, represents or in any manner indicates, that the wearer or possessor thereof is vested or endowed with official powers or with authority to make arrests, or in any manner to exercise governmental or police powers, or which shall purport, represent or in any manner indicate, that the wearer or possessor thereof is a duly appointed sheriff, deputy sheriff, constable, police officer, detective, marshal, private watchman, city or state inspector. (1948 C., Ch. 46, § 4; 1960 C., § 784.010; 1994 C., § 15.08.010.)

RSMo:

RSMo 575.120 (2016) False impersonation

15.08.020 Badges—Sale.

It is unlawful for any person, to sell, offer for sale or display for the purpose of sale, any badge, shield, button, pin or other emblem, which purports, represents or in any manner indicates, that the wearer or possessor thereof is vested or endowed with official powers or with authority to make arrests, or in any manner to exercise governmental or police powers, or which shall purport, represent or in any manner indicate, that the wearer or possessor thereof is a duly appointed sheriff, deputy sheriff, constable, police officer, detective, marshal, private watchman, city or state inspector, unless the purchaser thereof is authorized to wear or possess the same. (1948 C., Ch. 46, § 5; 1960 C., § 784.020; 1994 C., § 15.08.020.)

15.08.030 Impersonation of officer.

No person shall falsely represent himself to be an officer of the City, nor shall without being duly authorized by the City, exercise or attempt to exercise any of the duties, functions or powers of a City officer or member of the Police Force. (1948 C., Ch. 46, § 36(part); 1960 C., § 767.010; 1994 C., § 15.08.030.)

RSMo:

RSMo 575.120 (2016) False impersonation

Chapter 15.10

RESISTING ARREST

Sections:

15.10.010 Impersonating or interfering with officer—Misdemeanor declared.

15.10.010 Impersonating or interfering with officer—Misdemeanor declared.

Whoever shall, in this City, falsely represent himself to be an officer of this City, or shall, without being duly authorized by the City, exercise or attempt to exercise, any of the duties, functions, or powers of a City officer or member of the Metropolitan Police Force; or shall hinder, obstruct, resist or otherwise interfere with any City officer in the discharge of his official duties; or attempt to prevent any such officer from arresting any person, or attempt to rescue from such officer any person in his custody, shall be deemed guilty of a misdemeanor. (1994 C., § 15.10.010; Ord. No. 7,221, app. March 22, 1870, Art. VIII, pg. 7103.)

Editor's Note:

Section 15.10.010 has been corrected to restore original language. The previous Section 15.10.010 was derived from 1948 C. Ch. 46 § 36(part) and 1960 C. § 768.010.

City Counselor Ops.: 8419A, 9681, 9710, 10155

Cases:

Defendant had no right to prevent or interfere with arrest of defendant's wife and son even if arrest had been illegal. *City of St. Louis v. Treece,* 502 S.W. 2d 432 (1973).

Guard of excursion boat who denied license collector access to the boat was not interfering with official duties of collector. *City of St. Louis v. Carroll,* 494 S.W. 2d 2 (1973).

There can be no offense of resisting arrest when the arrest of defendant is unlawful. *City of St. Louis v. Penrod,* 332 S.W. 2d 34 (1960). City Ordinance No. 41386 which prohibited interference with police officer in exercise of his duties was not void on ground that it was unintelligible. *City of St. Louis v. Langeneckert,* 210 S.W. 2d 736 (1948).

Chapter 15.12

POLICE ANIMALS

Sections:

15.12.010 Injuring or interfering with animal prohibited.
15.12.020 Exceptions.
15.12.030 Penalty for violations.

15.12.010 Injuring or interfering with animal prohibited.

It shall be unlawful for any person to taunt, torment, tease, beat, strike, interfere with, endanger, injure or kill or administer or subject any desensitizing drugs, chemicals or substance to any dog or horse used by a Law Enforcement Officer in the performance of his duties or when the dog or horse is placed in a kennel, stable or any enclosure while off duty. (1994 C., § 15.12.010; Ord. No. 61047, § 1, 1988.)

15.12.020 Exceptions.

This chapter does not apply to a police officer or veterinarian that may perform euthanasia in emergency situations when delay would cause the dog or horse undue suffering and pain. (1994 C., § 15.12.020; Ord. No. 61047, § 2, 1988.)

15.12.030 Penalty for violations.

Any person convicted of violating the provisions of this chapter shall be fined a minimum of four hundred dollars ($400.00) and may also be imprisoned from one (1) day to ninety (90) days or by both such fine and imprisonment. (1994 C., § 15.12.030; Ord. No. 61047, § 3, 1988.)

Chapter 15.13

NEIGHBORHOOD PROTECTION ORDER

Sections:

15.13.010 Violation.
15.13.020 Definition.
15.13.030 Penalty for violation.

15.13.010 Violation.

The violation of a neighborhood protection order is prohibited within the City of St. Louis. (1994 C., § 15.13.010; Ord. No. 65800, § 1, 2003.)

15.13.020 Definition.

A neighborhood protection order is any court order that prohibits a person from being in any specified area as a condition of release from custody, a condition of probation, parole, or other supervision or any court order in any criminal matter. (1994 C., § 15.13.020; Ord. No. 66693, § 1, 2005; Ord. No. 65800, § 2, 2003.)

15.13.030 Penalty for violation.

Whoever violates a neighborhood protection order shall be fined not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than ninety (90) days. In lieu of a fine or imprisonment, the Court may order the defendant to complete a term of community service not to exceed one hundred twenty (120) hours. (1994 C., § 15.13.030; Ord. No. 65800, § 3, 2003.)

Chapter 15.14

WHISTLEBLOWER LAW

Sections:

15.14.010 Title.

15.14.020 Definitions.
15.14.030 Reporting Procedures.
15.14.040 Protections.
15.14.050 Remedies.
15.14.060 Reporting retaliation.
15.14.070 Penalties.

15.14.010 Title.

This chapter shall be known as the "City of St. Louis Whistleblower Law." (1994 C., § 15.14.010; Ord. No. 70847, § 2, 11-7-2018; Ord. No. 70475, § 1, 2-16-2017.)

15.14.020 Definitions.

A. For the purposes of this chapter, the following terms and words are hereby defined:

1. "Auditing Official" means the City of St. Louis Director of Personnel, the Comptroller or the City of St. Louis Civilian Oversight Board Executive Director, as well as any authorized representative of any of the above, in connection with a report of Improper Governmental Action within the Auditing Official's jurisdiction as set out in Section 15.14.030.A.

2. "Employee" means anyone employed by the City, whether in a permanent or temporary position, including full-time, part-time, and intermittent workers. It also includes members of appointed boards, commissions, or committees, whether or not paid.

3. "Improper governmental action" means any action by a City employee, an appointed member of a board, commission, or committee, or an elected official of the City, that is undertaken during the performance of such person's duties to the City or under color of City authority, and that violates a federal, state, or local government law or rule; is an abuse of authority; violates the public's trust or expectation of their conduct; is of substantial and specific danger to the public's health or safety; or is a gross waste of public funds. The action need not be within the scope of the employee's, elected official's, board member's, commission member's, or committee member's official duties to be subject to a claim of improper governmental action. Improper governmental action does not include City personnel actions, including, but not limited to, employee grievances, complaints, appointments, promotions, transfers, assignments, reassignments, reinstatements, restorations, reemployments, performance evaluations, reductions in pay, dismissals, suspensions, demotions, reprimands, or violations of collective bargaining agreements, except to the extent that such action amounts to retaliation as defined in this chapter.

4. "Retaliate," "retaliation" and "retaliatory action" mean any adverse change in an employee's employment status or the terms and conditions of employment that results from an employee's protected activity under this chapter. Adverse changes include, but are not limited to: verbal abuse; intimidation; creating a hostile work environment; denial of adequate staff to perform duties; frequent staff changes; frequent and undesirable office changes; refusal to assign meaningful work; unsubstantiated letters of reprimand or unsatisfactory performance evaluations; demotion; reduction in pay; denial of promotion; transfer or reassignment; suspension or dismissal; or other disciplinary action made because of an employee's protected activity under this chapter. (1994 C., § 15.14.020; Ord. No. 70847, § 3, 11-7-2018; Ord. No. 70475, § 2, 2-16-2017.)

15.14.030 Reporting Procedures.

A. To invoke the protections of this chapter, an employee shall make a written report of improper governmental action to the appropriate Auditing Official:

1. Employees shall report sexual harassment, discrimination, a violation of this chapter, a violation of Ordinance 68715, or any civil rights issues to the Department of Personnel.

2. Employees shall report a violation of election laws and improper governmental action by elected officials to the Missouri Ethics Commission.

3. Employees shall report improper governmental actions by members of the Division of St. Louis Metropolitan Police to the Department of Public Safety or to the Executive Director of the City of St. Louis Civilian Oversight Board.

4. Employees shall report fraud, other financial impropriety, and any actions for which no other appropriate recipient of the report is listed in this subsection to the St. Louis Office of the Comptroller.

B. Auditing Officials shall meet to establish processes and procedures for managing complaints filed pursuant to this chapter, and the Auditing Officials shall investigate and dispose of reports of improper governmental action in accordance with these processes and procedures. If an Auditing Official concludes that an improper governmental action has taken place or concludes that the relevant department, agency,

or supervisory officials have hindered the Auditing Official's investigation into the complaint, the Auditing Official shall notify in writing the City Counselor, the most senior official of the City department involved, and any other entity the Auditing Official deems necessary in the circumstances. The Auditing Official shall promptly provide a copy of that written notice to the employee who filed the report.

C. A Department of Personnel Official may transfer a report of improper governmental action to another Auditing Official for investigation if the Department of Personnel Official deems it appropriate.

D. Employees who carry out the following upon a good faith, reasonable belief are entitled to the protections and remedies articulated in Sections 15.14.040 and 15.14.050:

1. Cooperating in an investigation by an Auditing Official related to improper governmental action; and/or

2. Testifying in a proceeding or prosecution arising out of an improper governmental action.

E. It shall be unlawful for an employee to retaliate against another employee who proceeded or is proceeding in good faith in accordance with this chapter.

F. Upon commencement of service and at least once each year thereafter, the Department of Personnel shall ensure every Civil Service employee of the City shall receive a written summary of this chapter, the procedures for reporting improper governmental actions to Auditing Officials, the procedures for obtaining the protections extended, and the prohibition against retaliation. (1994 C., § 15.14.030; Ord. No. 70847, § 4, 11-7-2018; Ord. No. 70475, § 3, 2-16-2017.)

15.14.040 Protections.

To the extent allowed by law, the identity of any employee reporting information about an improper governmental action shall be kept confidential unless the employee waives confidentiality in writing. Auditing Officials may take reasonable measures to protect employees who reasonably believe they may be subject to bodily harm for reporting improper governmental action. (1994 C., § 15.14.040; Ord. No. 70847, § 5, 11-7-2018; Ord. No. 70475, § 4, 2-16-2017.)

15.14.050 Remedies.

The following remedies may be available to employees subjected to adverse actions for reporting improper governmental action: restitution, reinstatement, reimbursement for lost wages or expenses incurred, promotion, or other forms of restitution. In the case of employees who are covered by the Civil Service System, the Auditing Official shall recommend in writing to the Department of Personnel possible remedies. Nothing in this chapter shall prohibit an employee from pursuing his or her own private action to seek damages or other remedies beyond those awarded by the City. (1994 C., § 15.14.050; Ord. No. 70847, § 6, 11-7-2018; Ord. No. 70475, § 5, 2-16-2017.)

15.14.060 Reporting retaliation.

An employee who believes he or she has been retaliated against in violation of this chapter must submit a written complaint within ninety (90) days of gaining knowledge of the retaliatory action. The complaint must be filed with the Auditing Official investigating the underlying improper governmental action. (1994 C., § 15.14.060; Ord. No. 70847, § 7, 11-7-2018; Ord. No. 70475, § 6, 2-16-2017.)

15.14.070 Penalties.

Any employee of the City who engages in prohibited retaliatory action is subject to discipline by suspension without pay, demotion, discharge, or some combination thereof as appropriate. Any Civil Service employee who engages in prohibited retaliatory action is subject to discipline as defined in Administrative Regulation 117. Such an employee is further subject to fine up to $500.00 per violation. (1994 C., § 15.14.070; Ord. No. 70847, § 8, 11-7-2018; Ord. No. 70475, § 7, 2-16-2017.)

DIVISION II. DISCRIMINATION

Chapter 15.18

DISCRIMINATION PRACTICES

For civil rights enforcement agency, see Ch. 3.44.

RSMo:

RSMo Ch. 213 (2016) Human rights

Sections:

Part I. Real Estate Signs

15.18.155 Prohibited.
15.18.160 Administration.
15.18.165 Prosecution.
15.18.170 Application for sign use.
15.18.175 Sign size and contents.
15.18.180 Permit.
15.18.185 Appeal.

15.18.190 Penalty for violation of Section 15.18.155.

15.18.195 Applicability.

Part II. Soliciting Real Estate Sales

15.18.200 Prohibited.

15.18.205 Administration.

15.18.210 Prosecution.

15.18.215 Permit.

15.18.220 Filing fee.

15.18.225 Hearing.

15.18.230 Appeal.

15.18.235 Penalty for violation of Section 15.18.200.

15.18.240 Applicability.

PART I. REAL ESTATE SIGNS

For other regulations, see Ch. 15.90.

Prior code history: 1960 C. Ch. 741

15.18.155 Prohibited.

Notwithstanding Chapter 15.90, it is unlawful for any person to place any sign on property, public or private, located in zoning districts A, B, C, or D, which indicates that any property in such zoning district is "for sale," "open" for inspection, or otherwise available for purchase, or that any property in such zoning district has been "sold," either directly by or from the owner or by or through a real estate agent or broker. (1994 C., § 15.18.155; Ord. No. 55382, § 1, 1969.)

Cases:

Ordinance prohibiting "for sale," "open," and "sold" signs within certain zoning districts was constitutional. *Howe v. City of St. Louis,* 512 S.W. 2d 127 (1974).

15.18.160 Administration.

The administration of this part shall be the responsibility of the Council on Human Relations. The Anti-discrimination Division shall have full operating responsibility under the supervision of the Council for carrying out the provisions of this part. In addition to any powers or duties conferred on the Council it shall have the power and duty to:

A. Initiate on its own or receive, investigate and seek to adjust all complaints or discriminatory practices prohibited by this part;

B. By itself or through its Anti-discrimination Division, to hold public or private hearings, subpoena witnesses and compel their attendance, administer oaths, take the testimony of any person under oath relating to any matter under investigation or in question. The Council may make rules as to the procedure for the issuance of subpoenas by the Anti-Discrimination Division. Contumacy or refusal to obey a subpoena issued pursuant to this section may be certified to a City Court for appropriate action. (1994 C., § 15.18.160; Ord. No. 55382, § 2(a), 1969.)

15.18.165 Prosecution.

Upon certification by the Division the City Counselor may, if in his judgment the violation appears clear and the proof thereof available, institute a charge in the City Courts against the alleged violator and prosecute the same to final conclusion. (1994 C., § 15.18.165; Ord. No. 55382, § 2(b), 1969.)

15.18.170 Application for sign use.

Notwithstanding Section 15.18.155, the Council shall on the application of the owner of any property, grant such person a numbered permit to place a sign on the subject property if it shall find that the placing of the sign on subject property will not result in or cause a representation that any block, neighborhood, or area has undergone, will or might undergo a change with respect to the religious, racial or nationality composition of the block, neighborhood, or area, which would discourage the purchase or encourage the sale of any property in a particular area because of the real or possible change. (1994 C., § 15.18.170; Ord. No. 55606, § 1(part), 1970; Ord. No. 55382, § 2(c, i), 1969.)

15.18.175 Sign size and contents.

Any sign as used in this part shall not exceed four square feet in surface area and shall indicate only that the property is "for sale"; that any person may inquire within or a telephone number or the name of a real estate company which may be called and the permit number. The permit for the sign shall be issued only after the payment of a filing fee of five dollars by the applicant. (1994 C., § 15.18.175; Ord. No. 55606, § 1(part), 1970; Ord. No. 55382, § 2(c, ii), 1969.)

15.18.180 Permit.

In accordance with this part, the Council may on proper hearing following thirty days' public notice thereof, find that the signs will not within a certain specified area, result in the discriminatory representations specified in Section 15.18.170. After the finding and until the finding is altered, amended, or reversed by the Council after proper hearing following thirty days'

public notice thereof, the permit shall be issued to all applicants within the area, upon payment of the filing fee required in Section 15.18.175. (1994 C., § 15.18.180; Ord. No. 55606, § 1(part), 1970; Ord. No. 55382, § 2(c, iii), 1969.)

15.18.185 Appeal.

Any person or persons jointly or severally aggrieved by any decision of the Council may present to the Circuit Court of the City a petition, duly verified, setting forth that the decision is illegal in whole or in part, and specifying the grounds of the illegality. The petition shall be presented to the Court within thirty days after the filing of the Council's decision in the office of the Council with a copy forwarded by mail to the address of the applicant the same day. Upon the presentation of the petition the Court may review such decision of the Council, as provided by law for the review of administrative decisions. (1994 C., § 15.18.185; Ord. No. 55606, § 1(part), 1970; Ord. No. 55382, § 2(c, iv), 1969.)

15.18.190 Penalty for violation of Section 15.18.155.

Any person convicted of a violation of Section 15.18.155 shall be punished by a fine of not less than one hundred dollars and not more than two hundred fifty dollars or by imprisonment for ten days or by both such fine and imprisonment. (1994 C., § 15.18.190; Ord. No. 55382, § 3, 1969.)

15.18.195 Applicability.

Nothing in this part shall prohibit any person from advertising the availability of any property for purchase in any newspaper, or radio, or television, nor shall it preclude signs indicating the availability of rental or lease space of any property. (1994 C., § 15.18.195; Ord. No. 55382, § 4, 1969.)

PART II. SOLICITING REAL ESTATE SALES

For other regulations, see Ch. 15.90.

Prior code history: 1960 C. Ch. 742

15.18.200 Prohibited.

It is unlawful for any person to go in or upon any private or multiple-family residence, located in zoning districts "A," "B," "C" or "D," to solicit or encourage the owner or owners, or occupant or occupants thereof, to sell, offer for sale, or list the property, or to move therefrom, or to solicit or encourage such action by the use of "flyers," "circulars," letters, or similar material delivered to the residence either by an agent of such person or by the use of the mail, or by making telephone calls to the residence, without having been requested to do so by the owner or owners or occupant or occupants of the residence. (1994 C., § 15.18.200; Ord. No. 55381, § 1, 1969.)

Cases:

Antiblockbusting ordinances were not unconstitutionally vague and did not deny realtors freedom of speech, equal protection, or deprive them of property without due process of law. *Howe v. City of St. Louis,* 512 S.W. 2d 127 (1974).

15.18.205 Administration.

The administration of this part shall be the responsibility of the Council on Human Relations. The Anti-discrimination Division shall have full operating responsibility under the supervision of the Council for carrying out the provisions of this part. In addition to any powers or duties heretofore conferred on the Council it shall have the power and duty to:

A. Initiate on its own or receive, investigate and seek to adjust all complaints or discriminatory practices prohibited by this part;

B. By itself or through its Anti-discrimination Division, to hold public or private hearings, subpoena witnesses and compel their attendance, administer oaths, and take the testimony of any person under oath relating to any matter under investigation or in question. The Council may make rules as to the procedure for the issuance of subpoenas by the Anti-discrimination Division. Contumacy or refusal to obey a subpoena issued pursuant to this section may be certified to a City Court for appropriate action. (1994 C., § 15.18.205; Ord. No. 55381, § 2(part), 1969.)

15.18.210 Prosecution.

Upon certification by the division the City Counselor may, if in his judgment the violation appears clear and the proof thereof available, institute a charge in the City courts against the alleged violator and prosecute the same to final conclusion. (1994 C., § 15.18.210; Ord. No. 55381, § 2(b), 1969.)

15.18.215 Permit.

Notwithstanding Section 15.18.200, the Council shall on the application of any person, firm or corporation, grant such person, firm or corporation, a permit to solicit sales or listings within the area specified in the application for the permit, if it shall find that the solicitation within the requested area will not result in,

or cause a representation that any block, neighborhood or area has undergone, will or might undergo, a change with respect to the religious, racial, or nationality composition of the block, neighborhood, or area which would discourage the purchase or encourage the sale of any property in a particular area because of real or possible change. (1994 C., § 15.18.215; Ord. No. 55605, § 1(part), 1970; Ord. No. 55381, § 2(c, i), 1969.)

15.18.220 Filing fee.

A filing fee of one dollar per City block contained in the area covered in the application shall be assessed and paid prior to the issuance of the permit described in Section 15.18.215. The permit shall be for a period not to exceed six months. (1994 C., § 15.18.220; Ord. No. 55605, § 1(part), 1970; Ord. No. 55381, § 2(c, ii), 1969.)

15.18.225 Hearing.

In accordance with this part, the Council may on proper hearing following thirty days' public notice thereof, find that such signs will not within a certain specified area, result in the discriminatory representations specified in Section 15.18.215. After a finding and until the finding is altered, amended, or reversed by the Council after proper hearing following thirty days' public notice thereof, the permit shall be issued to all applicants for the area, upon payment of the filing fee required in Section 15.18.220. (1994 C., § 15.18.225; Ord. No. 55605, § 1(part), 1970; Ord. No. 55381, § 2(c, iii), 1969.)

15.18.230 Appeal.

Any person or persons jointly or severally aggrieved by any decision of the Council may present to the Circuit Court of the City a petition, duly verified, setting forth that the decision is illegal, in whole or in part, and specifying the grounds of the illegality. The petition shall be presented to the Court within thirty days after the filing of the Council's decision in the office of the Council with a copy forwarded by mail to the address of the applicant the same day. Upon the presentation of the petition the Court may review such decision of the Council, as provided by law for the review of administrative decisions. (1994 C., § 15.18.230; Ord. No. 55605, § 1(part), 1970; Ord. No. 55381, § 2(c, iv), 1969.)

15.18.235 Penalty for violation of Section 15.18.200.

Any person who shall be convicted of a violation of Section 15.18.200, shall be assessed a fine of not less than one hundred dollars, nor more than two hundred fifty dollars and shall be imprisoned for ten days, for each and every violation. (1994 C., § 15.18.235; Ord. No. 55381, § 3, 1969.)

15.18.240 Applicability.

Nothing in this part shall prohibit any person from advertising or soliciting properties or listings in any newspaper, or radio, or television, or magazine, or from advertising through such means properties available for purchase or rental or lease. (1994 C., § 15.18.240; Ord. No. 55381, § 4, 1969.)

Chapter 15.19

INSTITUTIONAL VANDALISM AND BIAS CRIMES

Sections:

15.19.010	**Definitions.**
15.19.020	**Institutional vandalism.**
15.19.030	**Ethnic or racial intimidation.**
15.19.040	**Police to provide information relating to bias crime to Civil Rights Enforcement Agency.**
15.19.050	**Civil Rights Enforcement Agency—Assistance to victims of bias crime—Investigations.**
15.19.060	**Penalty for violation.**

15.19.010 Definitions.

As used in this chapter the following terms shall have the meaning given in this section:

A. Of another. Property is that "of another" if any natural person, corporation, partnership, association, governmental subdivision or instrumentality, other than the actor, has a possessory or proprietary interest therein.

B. "Tamper" means to interfere with something improperly, to meddle with it, displace it, make unwarranted alterations in its existing condition, or to deprive, temporarily, the owner or possessor of that thing.

C. "Deface" means to place on any public or private property any symbol, object, characterization, appellation, or graffiti, including, but not limited to, a burning cross or Nazi swastika.

D. "Bias crime" means a criminal act or ordinance violation committed as a result of any motive or intent relating to, or antipathy, animosity or hostility based upon, the race, color, gender, religion, national origin,

age, ancestry, sexual orientation, disability, handicap or health-related condition of an individual or group of individuals. (1994 C., § 15.19.010; Ord. No. 61277, § 1, 1989.)

15.19.020 Institutional vandalism.

No person shall knowingly vandalize, deface or otherwise damage:

A. Any church, synagogue or other building, structure or place used for religious worship or other religious purpose;

B. Any cemetery, mortuary, military monument or other facility used for the purpose of burial or memorializing the dead;

C. Any school, educational facility, community center, hospital or medical clinic owned or operated by a religious or sectarian groups;

D. The grounds adjacent to, and owned or rented by, any institution, facility, building, structure or other place described in Subsection A, B or C of this section; or

E. Any personal property contained in any institution, facility, building, structure or place described in Subsection A, B or C of this section or on the grounds of such places. (1994 C., § 15.19.020; Ord. No. 61277, § 2, 1989.)

15.19.030 Ethnic or racial intimidation.

No person shall, by reason of any motive or intent relating to, or any antipathy, animosity or hostility based upon, the race, color, gender, religion, national origin, age, ancestry, sexual orientation, disability, handicap or health-related condition of another individual or group of individuals:

A. Purposely cause physical injury to another; or

B. Attempt to cause physical injury to another; or

C. Threaten to cause physical injury to another; or

D. Purposely place another in apprehension of immediate physical danger; or

E. Knowingly cause physical contact with another person knowing the other person will regard the contact as offensive or provocative;

F. Knowingly damage or threaten to damage the personal or real property of another; or

G. Tamper with the personal or real property of another for the purpose of causing substantial inconvenience to that person or another; or

H. Trespass on the property of another in violation of Section 15.74.120 of the Revised Code of the City of St. Louis; or

I. Commit an act of vandalism, as that term is defined by Section 15.78.010 of the Revised Code of the City of St. Louis; or

J. Knowingly assemble with six (6) or more persons and agree with such persons to violate any of the criminal laws of the State of Missouri or of the United States with force or violence; or

K. Discharge or shoot a firearm or threaten to discharge or shoot a firearm into or inside of any building, railroad, train, boat, aircraft or motor vehicle; or

L. Discharge a firearm within one hundred yards of any church, synagogue or other building, structure or place used for religious worship or other religious purpose or within one hundred (100) yards of any school, education facility, community center, hospital or medical clinic owned or operated by religious or sectarian groups; or

M. Carry a firearm or other weapon of lethal use into any church, synagogue or other building, structure or place used for religious worship or other religious purpose or within one hundred (100) yards of any school, education facility, community center, hospital or medical clinic owned or operated by religious or sectarian groups; or

N. Brandish a firearm or other weapon in a threatening manner; or

O. Deface the property of another; or

P. Communicate in writing or by telephone a threat to commit a misdemeanor involving violence or property damage or to commit any felony; or

Q. Make an anonymous telephone call; or

R. Make repeated telephone calls. (1994 C., § 15.19.030; Ord. No. 61277, § 3, 1989.)

15.19.040 Police to provide information relating to bias crime to Civil Rights Enforcement Agency.

A. Whenever any police officer has identified a victim or victims of a possible bias crime, committed within the City, the Police Department shall, to the extent known, supply the name, address and phone number of the victim(s) to the Executive Director of the Civil Rights Enforcement Agency, together with other relevant information concerning the victim(s).

B. The Police Department shall on at least a monthly basis, prepare a statistical summary concerning all criminal acts and ordinance violations committed within the City during the previous month which there is reason to believe have been committed as a result of any motive or intent relating to, or any antipathy, animosity or hostility based upon, the race, gender, color, religion, national origin, age, ancestry, sexual orientation, disability, handicap or health-related condition of an individual or group of individuals. A copy of this report shall be forwarded to the Civil Rights Enforcement Agency. This report shall be in a form approved by the Police Department and the Executive Director of the Civil Rights Enforcement Agency but shall, in no event, include the names of persons who are suspected or accused of having committed crimes or ordinance violations. (1994 C., § 15.19.040; Ord. No. 61277, § 4, 1989.)

15.19.050 Civil Rights Enforcement Agency—Assistance to victims of bias crime—Investigations.

A. Whenever the Police Department has provided information concerning a victim of a possible bias crime to the Executive Director of the Civil Rights Enforcement Agency, either the Director or a person designated by him shall make reasonable efforts to contact the victim for the purpose of offering to help the victim deal with the Police Department, prosecutors and other interested agencies.

B. In furtherance of the function of the Civil Rights Enforcement Agency set out in Section 3.44.040, the Director of the Agency may conduct investigations of possible bias crimes to determine if the crime is related to a pattern of discrimination or if, due to bias-related tensions in the area where the crime was committed, further bias crimes or acts of violence are likely to occur if remedial action is not taken. The Director of the Agency may also conduct investigations to determine if there is a pattern of discrimination or bias-related tensions in an area where he has reason to believe that such patterns or tensions exist, even though no bias crimes have been committed within such area. The Director shall present the findings of his investigation to the Commission of the Civil Rights Enforcement Agency.

C. Upon recommendation of the Director, or upon its own motion, the Commission may call a hearing to investigate bias crimes or to address perceived patterns of discrimination or bias-related tensions. For such purpose, the Commission shall be empowered to employ a Hearing Examiner and/or other employees necessary for such purpose. For the purpose of such hearing, the Commission is empowered to:

1. Receive evidence and hear testimony related to bias crime, patterns of discrimination, and bias-related tensions;

2. Compel the attendance of witnesses and the production of evidence relevant to the matter in question, for investigatory and determinative purposes, by subpoena issued by the commission, and enforce such subpoena in Circuit Court; and

3. Issue findings and recommendations concerning ways in which bias crimes, discriminatory patterns and bias-related tensions can be reduced in the affected area.

D. The Civil Rights Enforcement Agency is hereby authorized to develop and initiate educational and other programs designed to reduce bias-related tensions and the incidence of bias crimes, either in particular areas or on a City-wide basis. (1994 C., § 15.19.050; Ord. No. 61277, § 5, 1989.)

15.19.060 Penalty for violation.

Any person convicted of violation of Section 15.19.020 or 15.19.030 shall be punished by a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 15.19.060; Ord. No. 61277, § 7, 1989.)

Chapter 15.20

CITY LEASES

Sections:

15.20.010 Provision required.

15.20.010 Provision required.

All leases between the City, as lessor, and any person as lessee shall contain a provision reading as follows:

Lessee agrees that in the use of the leased property or in the use of any property used in connection with the leased property, he will not exclude or discriminate against any person solely because of race, color or creed, or for any reason not sanctioned by law and not applicable alike to persons generally in the use of said

property. (1960 C., § 121.095; 1994 C., § 15.20.010; Ord. No. 50230, § 1, 1961.)

Chapter 15.21

DISCRIMINATION BASED UPON HAIRSTYLE, PROTECTIVE HAIR, OR NATURAL OR CULTURAL HAIR TEXTURE OR STYLE

Sections:

15.21.010	**Definitions.**
15.21.020	**Prohibitions.**
15.21.030	**Complaints, proceedings and enforcement.**

15.21.010 Definitions.

As used in this chapter, unless a different meaning clearly appears from the context in which used, the following terms and phrases shall be taken to have the meaning ascribed to them in this section, to wit:

1. "Academic, professional or vocational school" includes any person who trains and teaches individuals to engage in any trade, business, profession, calling or vocational pursuit.

2. "Adverse employment action" includes, but is not limited to, termination, demotion or refusal to promote or advance, loss of career specialty, reassignment to a different shift, reduction of wages or benefits, refusal to provide training opportunities or transfer to a different department, adverse administrative action, or any other penalty, disciplinary or retaliatory action.

3. "Aggrieved person" includes any person who claims to have been injured by a discriminatory act or practice described herein.

4. "Discriminatory practice" means an act that is prohibited by the provisions of this chapter.

5. "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

6. "Employer" includes any person who employs six or more persons exclusive of that person's parents, spouse or children.

7. "Employment agency" includes any person undertaking for compensation to procure opportunities to work or to procure, recruit, refer or place employees.

8. "Financial institution" means bank, banking organization, mortgage company, insurance company, investment company or other lender to whom application is made for financial assistance for the purchase, lease, acquisition, construction, rehabilitation, repair, maintenance, or improvement of real property, or an individual employed by or acting on behalf of or as agent of any of these.

9. "Individual" means one or more individuals.

10. "Hairstyle" includes hair textures and styles of any hair length such as protective hair and cultural hair textures and styles, and other forms of hair presentation.

11. "Labor organization" includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment.

12. "Person" includes one or more individuals, partnerships, associations, unincorporated organizations, corporations, mutual companies, joint stock companies, legal representatives, trusts, trustees, labor organizations, fiduciaries, trustees in bankruptcy, and/or receivers.

13. "Protective hair, natural and cultural hair textures and hairstyles" include hairstyles and hair textures most commonly associated with race, including, without limitation, braids, cornrows, locs, Bantu knots, Afros, and twists, whether or not hair extensions or treatments are used to create or maintain any such hairstyle, and whether or not the hairstyle is adorned by hair ornaments, beads or headwraps.

14. "Real estate broker" or "Real estate salesman" has the same definition as contained in Ordinance 67119.

15. "Realty" includes real estate, lands, buildings, structures, housing accommodations, dwellings, tenements, leaseholds, cooperatives, condominiums, and hereditaments, corporeal or incorporeal, or any interest in the above.

16. "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (Ord. No. 71343, § 1, 5-7-2021.)

15.21.020 Prohibitions.

A. *General Prohibition.* Discriminatory practices, as defined and established by this section, are prohibited. Any person engaging in a prohibited discrimina-

tory practice shall be guilty of an ordinance violation, which shall be punishable in the manner set out in this chapter.

B. *Discrimination in Employment.* It shall be a prohibited discriminatory employment practice:

1. For an employer to fail or refuse to the hire, to discharge or otherwise discriminate against any individuals with respect to compensation, advancement and promotions, or the terms, conditions or privileges of employment, because of hairstyle, protective hair, or natural or cultural hair texture or style unless based upon demonstrable workplace safety concerns directly related to duties and responsibilities of the employment position;

2. For a labor organization to exclude or expel from membership, or otherwise to discriminate against any applicants or members, because of hairstyle, protective hair, or natural or cultural hair texture or style;

3. For an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against any individuals because of hairstyle protective hair, or cultural hair texture or style;

4. For an employer, labor organization or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication which directly or indirectly expresses any preference, limitation, specification or discrimination because of protective hair, or cultural hair texture or style;

C. *Discrimination in Provision of Housing or Realty.* It shall be a prohibited housing or realty practice and shall constitute a discriminatory housing practice:

1. For any person, including, without limitation, any real estate broker, salesman or agent, or any employee thereof, to discriminate against any individuals because of their hairstyle, protective hair, or cultural hair texture or style with respect to the use, enjoyment or transfer, or prospective use, enjoyment or transfer, of any interest whatsoever in realty, or with respect to the terms, conditions, privileges or services granted or rendered in connection therewith, or with respect to the making or purchasing of loans for the purchase or maintenance of residential real estate or loans in the secondary market, or the provision of other financial assistance, or with respect to the terms, conditions, privileges or services granted or rendered in connection with any interest whatsoever in realty, or with respect to the making of loans secured by residential real estate;

2. For any person, including, without limitation, any banking, money lending, credit securing or other financial institution, or any officer, agent or employee thereof, to discriminate against any individuals because of hairstyle, protective hair, or cultural hair texture or style with respect to the granting or withholding of credit or financial assistance, or the extending or renewing of credit or financial assistance, or modifying of rates, terms, conditions, privileges or other provisions of credit or financial assistance, or services retained or rendered, in connection with the transfer or prospective transfer of any interest whatsoever in realty, or in connection with the construction, repair, improvement or rehabilitation of realty;

3. For any person to refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate the sale or rental of, or otherwise make unavailable or deny a dwelling to any persons because of their hairstyle, protective hair, or cultural hair texture or style;

4. For any person to discriminate against any other person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of that person's reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

5. For any person to represent to another person because of their hairstyle, protective hair, or cultural hair texture or style that any dwelling is not available for inspection, sale, or rental when such dwelling is, in fact, so available;

6. For any person to deny any other person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against them in the terms or conditions of such access, membership, or participation because of their hairstyle, protective hair, or cultural hair texture or style; (Ord. No. 71343, § 2, 5-7-2021.)

15.21.030 Complaints, proceedings and enforcement.

An aggrieved person may, not later than one hundred eighty (180) days after an alleged prohibited discriminatory practice has occurred or terminated, file a complaint with the Director of the Civil Rights Enforcement Agency pursuant to the procedures set forth in Ordinance 67119. Such complaints shall be taken, investigated, processed and enforced according to the terms and provisions of Ordinance 67119. (Ord. No. 71343, § 3, 5-7-2021.)

DIVISION III. OFFENSES AGAINST PUBLIC DECENCY

Chapter 15.22

RESERVED

Editor's Note:

Ord. No. 71934, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 15.22, §§ 15.22.010—15.22.030, which pertained to desecration of the flag, and derived from the 1960 Code, §§ 807.010—807.030; the 1994 Code, §§ 15.22.010—15.22.030; and Ord. No. 54729, §§ 1—3, approved in 1967.

Chapter 15.28

HUMAN ENDURANCE CONTESTS

Sections:

15.28.010 Defined.

15.28.020 Prohibited.

15.28.010 Defined.

"Human endurance contest," as used in this chapter, means any exhibition, performance or contest to which an admission fee is charged and wherein the contestants or any one of them participate for more than twelve hours in any one period of twenty-four hours. (1948 C., Ch. 67, § 3; 1960 C., § 779.010; 1994 C., § 15.28.010.)

15.28.020 Prohibited.

It is unlawful for any person to conduct, operate or participate in a contest of human endurance in the City, or to cause, suffer or permit anyone else so to do. (1948 C., Ch. 67, § 4; 1960 C., § 779.020; 1994 C., § 15.28.020.)

McQuillin:

24.214 Endurance contests

Chapter 15.30

INDECENT AND LEWD CONDUCT AND BOOKS

Prior code history: 1960 C. §§ 788.100—788.020

Sections:

15.30.010 Prohibition.

15.30.020 Definitions.

15.30.030 Penalty for violation.

15.30.010 Prohibition.

No person shall engage in or commit any indecent or lewd act in any public place. (1994 C., § 15.30.010; Ord. No. 60546, § 2, 1987.)

15.30.020 Definitions.

A. For the purpose of this chapter, the following words and phrases shall be defined as follows:

1. "Indecent or lewd act" shall include:

a. The exposure of one's genitals, buttocks, vulva, pubic hair, pubic area or the female breast below a point immediately above the top of the areola, for the purpose of sexual arousal or gratification or which is likely to cause affront or alarm; provided, however, that any exposure of the female breast necessarily incident to breast-feeding an infant shall not be deemed to be a violation of this chapter; or

b. The touching, caressing or fondling of the breasts, buttocks or genitals, whether clothed or unclothed, for the purpose of sexual arousal or gratification or which is likely to cause affront or alarm; or

c. Acts or representations of acts of human masturbation, sexual intercourse or sodomy, bestiality, cunnilingus, fellatio, flagellation or torture by or upon a person as an act of sexual stimulation or gratification; or

d. Acts or representation of acts of urination or defecation, other than of the public view in the proper receptacles of public or private comfort stations, restrooms, toilets or other similar facilities provided for these acts.

2. "Public place" is any publicly owned place or premises or any privately owned place or premises to which the public or a substantial number of persons have access or where the conduct or act involved may be viewed by people other than the members of the actor's family or household.

B. Exclusion. This chapter shall not prohibit performances that are not pornographic under the provisions of Chapter 15.32 of the Revised Code of the City of St. Louis. (1994 C., § 15.30.020; Ord. No. 60546, § 3, 1987.)

Cases:

Burlesque dance violated city ordinance. *City of St. Louis v. Mikes,* 372 S.W. 2d 508 (1963).

A city ordinance prohibiting certain types of conduct is unconstitutionally vague insofar as it attempts to proscribe conduct by use of the words "indecent or lewd act of behavior." *D.C. v. City of St. Louis,* 795 F. 2d 652 (8th Cir. 1986).

McQuillin:

24.112 Lewd conduct, adultery, miscegenation

15.30.030 Penalty for violation.

Any person found in violation of this chapter shall be fined no less than one hundred dollars ($100.00) nor

more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. (1994 C., § 15.30.030; Ord. No. 60546, § 5, 1987.)

Chapter 15.32

OBSCENITY

Prior history: Ords. 50284, 55621, 56704, 57066; 1960 C. §§ 747.010—747.060

Sections:

15.32.010—15.32.040 Reserved.

15.32.050 Definitions.

15.32.060 Promotion, possession or presentation of pornographic material.

15.32.070 Furnishing pornographic materials to minors.

15.32.080 Evidence of intent.

15.32.090 Display of pornographic material.

15.32.100 Applicability to cable television franchises.

15.32.110 Penalty for violation.

15.32.010—15.32.040 Reserved.

Editor's Note:

Ord. No. 70851, adopted October 5, 2018, amended the Code by repealing former §§ 15.32.010—15.32.040. Former §§ 15.32.010—15.32.040 pertained to provisions regarding the Decent Literature Commission, and derived from Ord. No. 51871, § 4, of 1963.

15.32.050 Definitions.

A. "Pornographic." Any material or performance is "pornographic" if, considered as a whole, applying contemporary community standards:

1. Its predominant appeal is to prurient interest in sex; and

2. It depicts or describes sexual conduct in a patently offensive way; and

3. It lacks serious literary, artistic, political or scientific value.

In determining whether any material or performance is pornographic, it shall be judged with reference to its impact upon ordinary adults.

B. "Material" means anything printed or written, or any picture, drawing, photograph, motion picture film, or pictorial representation, or any statue or other figure, or any recording or transcription, or any mechanical, chemical, or electrical reproduction, or anything which is or may be used as a means of communication. "Material" includes undeveloped photographs, molds, printing plates and other latent representational objects.

C. "Performance" means any play, motion picture film, dance or exhibition performed before an audience.

D. "Promote" means to manufacture, issue, sell, provide, mail, deliver, transfer, transmute, publish, distribute, circulate, disseminate, present, exhibit, or advertise, or to offer or agree to do the same.

E. "Furnish" means to issue, sell, give, provide, lend, mail, deliver, transfer, circulate, disseminate, present, exhibit or otherwise provide.

F. "Minor" means any person under the age of eighteen.

G. "Pornographic for minors." Any material or performance is "pornographic for minors" if it is primarily devoted to description or representation, in whatever form, of nudity, sexual conduct, sexual excitement, or sadomasochistic abuse and:

1. Its predominant appeal is to prurient interest in sex; and

2. It is patently offensive to prevailing standards in the adult community as a whole with respect to what is suitable material for minors; and

3. It lacks serious literary, artistic, political, or scientific value for minors.

H. "Nudity" means the showing of post-pubertal human genitals or pubic area, with less than a fully opaque covering.

I. "Sexual conduct" means acts of human masturbation; deviate sexual intercourse; sexual intercourse; or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks, or the breast of a female in the act of apparent sexual stimulation or gratification.

J. "Sexual excitement" means the condition of human male or female genitals when in a state of sexual stimulation or arousal.

K. "Sadomasochistic abuse" means flagellation or torture by or upon a person as an act of sexual stimulation or gratification.

L. "Explicit sexual material" means any pictorial or three-dimensional material depicting human masturbation, deviate sexual intercourse, sexual intercourse, direct physical stimulation or unclothed genitals, sadomasochistic abuse, or emphasizing the depiction of

post-pubertal human genitals; provided, however, that works of art or of anthropological significance shall not be deemed to be within the foregoing definition.

M. "Displaying publicly" means exposing, placing, posting, exhibiting, or in any fashion displaying in any location, whether public or private, an item in such a manner that it may be readily seen and its content or character distinguished by normal unaided vision viewing it from a street, highway or public sidewalk, or from the property of others. (1994 C., § 15.32.050; Ord. No. 58539, § 2, 1982.)

15.32.060 Promotion, possession or presentation of pornographic material.

Any person, firm, or corporation, who, knowing its content and character:

A. Promotes or possesses with the purpose to promote any pornographic material for pecuniary gain; or

B. Produces, presents, directs or participates in any pornographic performance for pecuniary gain;

is guilty of a misdemeanor punishable in accordance with Section 15.32.110. (1994 C., § 15.32.060; Ord. No. 58539, § 3, 1982.)

RSMo:

RSMo Ch. 573 (2016) Pornography and related offenses

Cases:

Only where ordinance is unconstitutional or otherwise invalid and attempts to enforce it results in irreparable injury to property rights is court authorized to restrain its enforcement by police. *State ex rel. Cervantes v. Bloom,* 485 S.W. 2d 446 (1972).

McQuillin:

24.17 Suppression of obscene literature

24.113 Prohibition of publication of obscene literature

15.32.070 Furnishing pornographic materials to minors.

Any person, firm, or corporation, who, knowing its content and character:

A. Furnishes any material pornographic for minors, knowing that the person to whom it is furnished is a minor or acting in reckless disregard of the likelihood that such person is a minor; or

B. Produces, presents, directs or participates in any performance pornographic for minors that is furnished to a minor knowing that any person viewing such performance is a minor or acting in reckless disregard of the likelihood that a minor is viewing the performance;

is guilty of a misdemeanor punishable in accordance with Section 15.32.110. (1994 C., § 15.32.070; Ord. No. 58539, § 4, 1982.)

RSMo:

RSMo 573.040 (2016) Furnishing pornographic materials to minors

15.32.080 Evidence of intent.

In any prosecution under Sections 15.32.050 through 15.32.110 evidence shall be admissible to show:

A. What the predominant appeal of the material or performance would be for ordinary adults or minors;

B. The literary, artistic, political, or scientific value of the material or performance;

C. The degree of public acceptance in this state and in the local community;

D. The appeal to prurient interest in advertising or other promotion of the material or performance;

E. The purpose of the author, creator, promoter, furnisher or publisher of the material or performance.

Testimony of the author, creator, promoter, furnisher, publisher, or expert testimony, relating to factors entering into the determination of the issues of pornography, shall be admissible. (1994 C., § 15.32.080; Ord. No. 58539, § 5, 1982.)

15.32.090 Display of pornographic material.

Any person, firm or corporation who knowingly:

A. Displays publicly explicit sexual material; or

B. Fails to take prompt action to remove such a display from property in his possession after learning of its existence;

is guilty of a misdemeanor punishable in accordance with Section 15.32.110. (1994 C., § 15.32.090; Ord. No. 58539, § 6, 1982.)

15.32.100 Applicability to cable television franchises.

Sections 15.32.050 through 15.32.1100 shall be incorporated by express reference in any ordinance or contract awarding a cable television franchise within the City, and in any contract to which the City is a party concerning the provision of cable television service in the City, and Sections 15.32.050 through 15.32.110 shall be a rule and regulation pursuant to any cable television franchise awarded by the City. Any person, firm or corporation holding a franchise for operation of a cable television system in the City who is convicted of a violation of Sections 15.32.050 through 15.32.110,

may, in the discretion of the Board of Aldermen, forfeit his franchise. (1994 C., § 15.32.100; Ord. No. 58539, § 8, 1982.)

15.32.110 Penalty for violation.

Any person, firm or corporation convicted of a violation of Sections 15.32.060, 15.32.070 or 15.32.090 shall be fined not more than five hundred dollars, sentenced to imprisonment for not more than ninety days, or both. (1994 C., § 15.32.110; Ord. No. 58539, § 7, 1982.)

Chapter 15.34

PROSTITUTION

Sections:

15.34.010 Definitions.
15.34.020 Prostitution, public solicitation and patronizing prostitution—Sex of parties no defense.
15.34.030 Penalty for violation.
15.34.040 Prostitution loitering.
15.34.080 House—Prohibited.
15.34.090 House—Frequenting.
15.34.100 House—Allowing premises to be used for.
15.34.110 House—Male person inhabiting, eating or sleeping in.
15.34.120 House—Duty of police.

15.34.010 Definitions.

The following definitions shall apply to the provisions of this chapter:

A. "Church zone" means any area within one thousand feet of the real property comprising a church or synagogue as measured from the outside perimeter of such real property.

B. "Park zone" means any area within one thousand feet of any park owned by the City of St. Louis as measured from the outside perimeter of such park.

C. "Prostitution" means the act of engaging or offering or agreeing to engage in sexual conduct with another person in return for something of value to be received by the person or by a third person.

D. "Patronizing prostitution." A person patronizes prostitution if:

1. Pursuant to a prior understanding, such person gives something of value to another person as compensation for that person or a third person having engaged in sexual conduct with such person or with another; or

2. Such person gives or agrees to give something of value to another person on an understanding that in return therefor that person or a third person will engage in sexual conduct with such person or with another; or

3. Such person solicits or requests another person to engage in sexual conduct with the solicitor or with another, or to secure a third person to engage in sexual conduct with the solicitor or with another, in return for something of value.

E. "Public solicitation" is when a person commits public solicitation when while in a public street, sidewalk, alley, park or any other public place or in a place of public accommodation, or in a place that is frequented by the general public engages or offers to engage in sexual conduct with another person or a third person.

F. "School zone" means any area within one thousand feet of the real property comprising a public or private elementary or secondary school, public vocational school, or a public or private junior college, college or university as measured from the outside perimeter of such real property.

G. "Sexual conduct" occurs when there is:

1. "Sexual intercourse" which means any penetration, however slight, of the female sex organ by the male sex organ, whether or not an emission results; or

2. "Deviate sexual intercourse" which means any sexual act involving the genitals of one person and the mouth, hand, tongue or anus of another person; or

3. "Sexual contact" which means any touching, manual or otherwise, of the anus or genitals of one person by another, done for the purpose of arousing or gratifying sexual desire of either party.

H. "Something of value" means any money or property, or any token, object or article exchangeable for money or property. (1994 C., § 15.34.010; Ord. No. 65818, § 2, 2002; Ord. No. 62292, § 1, 1991.)

15.34.020 Prostitution, public solicitation and patronizing prostitution—Sex of parties no defense.

In any prosecution for prostitution, public solicitation or patronizing prostitution, the sex of the two parties or prospective parties to the sexual conduct engaged in contemplated solicited is immaterial, and it is no defense that:

A. Both persons were of the same sex; or

B. The person who received, agreed to receive or solicited something of value was a male and the person who gave or agreed or offered to give something of value was a female. (1994 C., § 15.34.020; Ord. No. 65818, § 4, 2002; Ord. No. 62292, § 2, 1991.)

15.34.030 Penalty for violation.

It shall be a violation of this chapter for a person to commit prostitution, public solicitation or patronizing prostitution as herein defined.

It shall be a violation of this chapter for any person to be found in a place contrary to any court order that prohibits the person from being in any specified area as a condition of release from custody, a condition of probation, parole, or other supervision involving prostitution, public solicitation or patronizing prostitution as defined in this chapter.

A. Any person guilty of a first violation of this section shall be diverted to an approved social service or probation agency and undergo counseling and/or rehabilitation services, as approved by the court.

B. Any person found to be in violation of provisions of this chapter shall may be subject to a fine of not more than five hundred dollars ($500.00) or to a term of imprisonment of not more than ninety days (90) or to both a fine and imprisonment. A court may impose an alternative sentence of diversion within the terms prescribed by subsection (A) for a second or subsequent violation of this chapter at its discretion.

As a condition of probation, the court may require any person found to be in violation of this chapter to submit to a blood test, to be conducted under the direction of the St. Louis City Health Commissioner, for the purpose of determining the presence of any sexually transmitted disease. Cost of such testing shall be taxed to the defendant as costs in the proceeding. The report of such blood test shall be confidential and shall not be deemed a public record. (1994 C., § 15.34.030; Ord. No. 71934, § 8, 11-26-2024; Ord. No. 65818, §§ 3, 5—7, 2002; Ord. No. 62292, § 3, 1991.)

15.34.040 Prostitution loitering.

A. Definitions. As used in this section, the following words and/or phrases shall have the meanings as set forth herein:

1. "Known prostitute or procurer" means a person who within one (1) year previous to the date of arrest for violation of this section, has within the knowledge of the arresting officer been convicted in St. Louis Municipal Court or a Missouri Circuit Court of an offense involving prostitution.

2. "Public place" is an area generally visible to public view and includes streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, automobiles (whether moving or not), and buildings open to the general public including those which serve food or drink, or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

B. A person is guilty of prostitution loitering if he or she remains in a public place and intentionally solicits, induces, entices, or procures another to commit prostitution.

C. Among the circumstances which may be considered in determining whether the actor intends such prohibited conduct are that he or she:

1. Repeatedly beckons to, stops or attempts to stop, or engages passersby in conversation; or

2. Repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or any other bodily gesture; or

3. Circles an area in a motor vehicle and repeatedly beckons to, contacts, or attempts to stop pedestrians caught soliciting prostitution services; or

4. Is a known prostitute or procurer; or

5. Inquires whether a potential patron, procurer or prostitute is a police officer, searches for articles that would identify a police officer, or requests the touching or exposing of genitals or female breasts to prove that the person is not a police officer.

D. Penalty Clause. Any person guilty of a violation of this section may be diverted to an approved social service or probation agency and undergo counseling and/or rehabilitation services, as approved by the court. Upon any subsequent conviction under this section, the penalty shall be a sentence of up to ninety (90) days in jail and up to a $500.00 fine. (1994 C., § 15.34.040; Ord. No. 69291, §§ 2—5, 11-16-2012.)

15.34.080 House—Prohibited.

Any person who shall, in this City, keep, maintain, superintend or manage a bawdy house, house of ill-fame, house of bad repute, house of prostitution or assignation, or who shall harbor, secrete or permit any girl under the age of eighteen years, to remain in, visit or frequent such bawdy house, house of ill-fame, house of bad repute, prostitution or assignation, shall be

guilty of a misdemeanor. (1948 C., Ch. 46, § 57; 1960 C., §§ 774.010, 774.020; 1994 C., § 15.34.080.)

RSMo:

RSMo 567.060 (2016) Promoting prostitution in the second degree

15.34.090 House—Frequenting.

Anyone who shall frequent a house of ill-fame, bawdy house or house of bad repute, prostitution, or of assignation, or shall be found an inmate of such house, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 58; 1960 C., § 774.030; 1994 C., § 15.34.090.)

Cases:

Evidence was sufficient to establish that appellant was inmate of bawdy house. *City of St. Louis v. Cook,* 405 S.W. 2d 545 (1966).

15.34.100 House—Allowing premises to be used for.

Any person who shall permit any house, rooms or tenements in his possession, or under his charge and control, to be used for the purpose of prostitution, or house of bad repute, after ten days' notice from the Police Commissioners of such use of such house, rooms or tenements, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 59; 1960 C., § 774.040; 1994 C., § 15.34.100.)

15.34.110 House—Male person inhabiting, eating or sleeping in.

Any male person who shall inhabit, eat or sleep in any house of prostitution, bawdy house, house of bad repute or house of assignation, or who shall be in any way connected with the keeping, management or control of any such house, or of the bawds or prostitutes who live therein, or frequent such houses, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 46, § 60; 1960 C., § 774.050; 1994 C., § 15.34.110.)

15.34.120 House—Duty of police.

It shall be the duty of the Police Commissioners whenever they become aware of the use of any house, rooms or tenements, for any of the purposes mentioned in Sections 15.34.070—15.34.110, to give a written notice of such fact to the owner, or agent of the owner, of such house, rooms or tenements. (1948 C., Ch. 46, § 61; 1960 C., § 774.060; 1994 C., § 15.34.120.)

Chapter 15.38

SPITTING

Sections:

15.38.010 Prohibited.

15.38.020 Enforcement.

15.38.030 Posting chapter.

15.38.010 Prohibited.

Spitting upon the floor, platform, sides or steps of any railroad or railway station, railroad car, streetcar, or motor bus or upon the floor, platform, steps or walls of any public building, hall, church, theater, market, elevator in public or private building, or upon any sidewalk or upon any walk in any park or public place is declared a misdemeanor. (1948 C., Ch. 46, § 72; 1960 C., § 498.010; 1994 C., § 15.38.010.)

McQuillin:

24.92 Spitting on walks or in public places

15.38.020 Enforcement.

It shall be the duty of the police officers of the City to arrest any person found violating any of the provisions of Section 15.38.010. It shall be the duty of every streetcar conductor, operator of a bus, janitor of a building, or any person in charge of any car, public building or public or park, to watch for and cause the arrest of any person violating any of the provisions of Section 15.38.010. (1948 C., Ch. 46, § 73; 1960 C., § 498.020; 1994 C., § 15.38.020.)

15.38.030 Posting chapter.

It shall be the duty of all persons having charge of railway or railroad stations, streetcars, motor buses, public platforms, halls, churches or theaters, to have a copy of this chapter, framed and posted in conspicuous places. (1948 C., Ch. 46, § 74; 1960 C., § 498.030; 1994 C., § 15.38.030.)

Chapter 15.39

PUBLIC URINATION AND DEFECATION

Sections:

15.39.010 Public urination and defecation.

15.39.020 Penalty for violation.

15.39.010 Public urination and defecation.

A. It is unlawful for any person to urinate or defecate in public, other than when using a toilet, urinal or commode located in a restroom, bathroom or other structure enclosed from public view.

B. The provisions of this chapter shall not apply to the following individuals who may not be able to adequately control the bodily functions that control urination or defecation:

1. Children five (5) years of age or younger; and

2. Persons of any age who violate this chapter due to a verified medical condition. (1994 C., § 15.39.010; Ord. No. 67075, § 1, 2006.)

15.39.020 Penalty for violation.

Any person who violates the provisions of this chapter who does not meet an exception listed in Section 15.39.010 shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or both a fine and term of imprisonment. (1994 C., § 15.39.020; Ord. No. 67075, § 2, 2006.)

DIVISION IV. OFFENSES AGAINST PUBLIC PEACE

Chapter 15.42

PUBLIC NUISANCES

Editor's Note:

Ord. No. 69730, adopted April 18, 2014, repealed Ch. 15.42 and enacted a new chapter as set out herein. The former Ch. 15.42, §§ 15.42.010—15.42.070, pertained to similar subject matter and derived from Ord. No. 67600, §§ 1—6, 2007, and Ord. No. 68535, §§ 1—7, adopted Dec. 15, 2009.

Sections:

15.42.010	**Definitions.**
15.42.020	**Public nuisance.**
15.42.030	**Notice.**
15.42.040	**Summons.**
15.42.050	**Administrative hearings.**
15.42.060	**Occupancy list requirement.**
15.42.070	**Summons for failure to provide Department of Public Safety with list of occupants.**
15.42.080	**Summons for violation of nuisance abatement order.**
15.42.090	**Condemnation, revocation of permits, licenses, and nullification of exemptions.**

15.42.010 Definitions.

For the purposes of this chapter:

A. "Premises" includes any parcel of property, residential or commercial and the building or structure, if any, which is situated on the property, and any portion of the public way that abuts the parcel of property when it is used in conjunction with the abutting property for the commission of illegal activity.

B. A "nuisance" is a continuing act or physical condition which is made, permitted, allowed or continued by any person or legal entity, their agents or servants or any person or legal entity who aids therein which is detrimental to the safety, welfare or convenience of the inhabitants of the City or a part thereof, or any act or condition so designated by statute or ordinance.

C. "Owner" is the person or entity whose name is listed on the last deed recorded at the office of the Recorder of Deeds, on the tax records at the office of the Assessor, or person in care, custody or control of said premises.

D. "Domestic violence" means physical abuse, harassment, intimidation of a dependent, interference with personal liberty, or willful deprivation by a current or former spouse, significant other, or paramour.

E. "Stalking" means first-degree or second-degree stalking as defined in RSMo Ch. 565. (1994 C., § 15.42.010; Ord. No. 70390, § 1, 11-10-2016; Ord. No. 69730, § 1, 4-18-2014.)

15.42.020 Public nuisance.

A public nuisance exists when the premises are used for one or more of the following incidents within the previous 12 months:

A. The illegal sale, manufacture, storing, possession, distribution or use of narcotics or other controlled substances or precursors;

B. The illegal sale, manufacture, storing, possession, distribution or use of drug paraphernalia or precursors;

C. The illegal sale, storing, possession, use or distribution of a firearm(s), weapons or explosive devices.

A public nuisance exists when the premises are used for two or more of the following incidents within the previous 12 months:

A. Prostitution;

B. Illegal gambling;

C. The illegal sale, distribution or consumption of alcoholic beverages;

D. Violation of municipal, state or federal business licensing regulations;

E. Commission of any offense which is punishable by imprisonment of ninety days or more;

F. Maintaining or permitting a condition or engaging in an activity which unreasonably annoys, in-

jures, or endangers the safety, health, morals, or repose of any inhabitants of the City of St. Louis or a part thereof;

G. Making a false report of a violation of the law to any police officer or other officer of the law in person, or from any police alarm or call box, or over the telephone or radio, or by improper use of Emergency 911, or by any other means of communication;

H. Any other condition or activity that may constitute a felony, misdemeanor or ordinance violation under federal, state, or municipal law which is detrimental to the safety, welfare or convenience of the inhabitants of the City of St. Louis or a part thereof.

Notwithstanding any other provisions in this section, a public nuisance does not exist solely:

A. As a result of calls to law enforcement officers or agencies for assistance in regards to alleged domestic violence or stalking;

B. Due to incidents of domestic violence or stalking.

Nothing with respect to this section limits or prohibits the imposition of penalties against a perpetrator of domestic violence or stalking. (1994 C., § 15.42.020; Ord. No. 70390, § 2, 11-10-2016; Ord. No. 69730, § 2, 4-18-2014.)

15.42.030 Notice.

A. Whenever the Director of Public Safety reasonably believes that any premises constitutes a public nuisance as defined in Sections 15.42.010 and 15.42.020 of this chapter, the Director or his designee shall give written notice to the person or entity who owns or controls the premises ("owner"). The notice shall state that the Director reasonably believes that a nuisance exists and identifies the activities or conditions which form the basis of the belief. Said notice shall also set forth reasonable abatement measures which the landlord must take within 30 days of the notice. An owner occupant and/or tenant must immediately cease all nuisance behavior.

B. A copy of the notice shall be sent to the owner of said premises via first class United States mail. A copy of the notice shall also be posted in a prominent place on the premises by the Neighborhood Stabilization Officer, Problem Property Officer, Project 87 Building Inspector or other designee.

The notice shall also provide the owner of said premises a reasonable opportunity to meet with a representative of the City to discuss the allegations in the notice and the need for abatement measures.

C. In the event that additional nuisance behavior occurs on said premises which is different from the behavior which was listed in the notice, the Director or his designee may send an "amended notice" to the owner of said premises. The "amended notice" shall be sent via first class United States mail and by posting a copy in a prominent place on the premises. An additional 30-day abatement period shall not exist when an "amended notice" is issued.

D. Any notice of public nuisance that was issued in accordance with City of St. Louis Ordinance 68535 is still in effect and shall be given full faith and credit. (1994 C., § 15.42.030; Ord. No. 69730, § 3, 4-18-2014.)

15.42.040 Summons.

Any owner occupant, tenant or person who engages in, encourages, permits or otherwise fails to immediately abate the nuisance may be issued a summons for "engaging in a nuisance" or "maintaining a nuisance." Any owner of residential or commercial unit(s) who does not abate the nuisance within the 30-day period shall be issued a summons for "failure to abate a nuisance." A defendant who is found guilty of or pleads guilty to a nuisance offense shall be subject to a fine of not less than $100.00 and not more than $500.00, or any other penalty available by law including up to 90 days in jail, for the first offense. A defendant, who is found guilty of or pleads guilty to a second nuisance offense, shall be subject to a fine of not less than $200.00 and not more than $500.00, or any other penalty available by law including up to 90 days in jail. A defendant who is found guilty of or pleads guilty to a third or subsequent nuisance offense, shall be subject to a fine of $500.00, or any other penalty available by law including up to 90 days in jail. Each occurrence of nuisance behavior regardless of proximity in time to any other nuisance violation shall be deemed a separate and distinct offense for which a summons may be issued. (1994 C., § 15.42.040; Ord. No. 69730, § 4, 4-18-2014.)

15.42.050 Administrative hearings.

A. In addition to the issuance of a summons under Section 15.42.040, the Director of Public Safety may initiate an Administrative Hearing in order to abate a public nuisance as defined in Sections 15.42.010 and 15.42.020 of this chapter.

B. When an owner of rental residential or commercial property has failed to abate the nuisance within 30 days of the notice or an owner occupant has failed to

immediately abate the nuisance upon receipt of the notice, the Director of Public Safety or his designee may issue a hearing notice to the owner of the subject premises. The hearing notice shall be in writing and either sent by first class United States mail or served in person, not less than twenty (20) days prior to the date of such hearing. A copy of the hearing notice shall also be posted in a prominent place on the premises. A hearing notice shall not be issued when the calls to law enforcement are solely for assistance in regards to alleged domestic violence or stalking.

C. An attorney who appears on behalf of any owner must file a written appearance with the Director of the Department of Public Safety.

D. The case for the City shall be presented by the City Counselor.

E. The Administrative Hearing Officer may grant continuances only upon a finding of good cause.

F. All testimony shall be given under oath or affirmation.

G. The Administrative Hearing Officer may issue subpoenas to secure the attendance and testimony of relevant witnesses and the production of relevant documents.

H. RSMo 536.070 shall control the rules of evidence, objections, witnesses, judicial notice, affidavits as evidence, and the transcript requirements of the administrative hearing.

I. No violation may be established except upon proof by a preponderance of the evidence; provided, however, that a violation notice, or a copy thereof, issued and signed in accordance with Section 15.42.030 of this chapter shall be prima facie evidence of the correctness of the facts specified therein.

J. Upon conclusion of a hearing, the Administrative Hearing Officer shall issue Findings of Fact, Conclusions of Law and Order of the Hearing Officer ("order") setting forth the facts and law which support his/her nuisance determination.

K. In the event that a nuisance is found to exist, the Administrative Hearing Officer shall require that the owner implement reasonable measures designed to prevent the recurrence of the nuisance activity. Those measures may include, but are not limited to, making security improvements to the premises, hiring of licensed and insured security personnel, appointment of a receiver, the initiation and execution of eviction proceedings against tenants who engage in the nuisance behavior, or the closing and boarding of the premises for a period not to exceed one year.

L. The order shall inform the respondent of his or her right to seek judicial review of the Hearing Officer's final determination, as provided in RSMo 536.100 to 536.140.

M. The record of all hearings before an Administrative Hearing Officer shall include: (i) a record of the testimony presented at the hearing, which may be made by tape recording, digital recording or other appropriate means; (ii) all exhibits submitted as evidence at the hearing; and (iii) a copy of the order. (1994 C., § 15.42.050; Ord. No. 70390, § 3, 11-10-2016; Ord. No. 69730, § 5, 4-18-2014.)

15.42.060 Occupancy list requirement.

Whenever the owner of a property is issued a public nuisance notice under this chapter as defined in Section 15.42.030 of this chapter, the owner of any rental residential or owner-occupied residential property shall provide to the Department of Public Safety within thirty (30) days of the notice a written list of all current occupants of the property, regardless of whether or not the owner has a lease or other rental agreement with the occupant. Said list shall include the first and last name of all occupants regardless of age, the correlating house and unit number(s) in which they reside, as well as an approximate date their occupancy began at the property. (1994 C., § 15.42.060; Ord. No. 69730, § 6, 4-18-2014.)

15.42.070 Summons for failure to provide Department of Public Safety with list of occupants.

Failure to provide a complete list of occupants to the Department of Public Safety within thirty (30) days of the date of a public nuisance notice as required by Section 15.42.060 of this chapter shall be a violation of this chapter and any person who fails to comply with such shall be subject a fine not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each day the court finds such person to be in noncompliance. In addition to a fine, the court may sentence such person to not more than ninety (90) days' imprisonment. (1994 C., § 15.42.070; Ord. No. 69730, § 7, 4-18-2014.)

15.42.080 Summons for violation of nuisance abatement order.

Failure to comply with an order to abate a public safety nuisance under this chapter shall be a violation

of this chapter and any person who fails to comply with such an order shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each day the court finds such person to be in noncompliance. In addition to a fine, the court may sentence such person to not more than ninety (90) days' imprisonment. (1994 C., § 15.42.080; Ord. No. 69730, § 8, 4-18-2014.)

15.42.090 Condemnation, revocation of permits, licenses, and nullification of exemptions.

If the Hearing Officer determines that a nuisance exists and orders that the abatement of the nuisance requires closure of the subject premises, the following shall apply:

A. If the building is at any time occupied during the order of closure the building shall be deemed a "nuisance" in accordance with the City of St. Louis Property Maintenance Code and "condemned" in accordance with the laws of the City of St. Louis that apply to condemned buildings. All the remedies to the City of St. Louis allowed through those ordinances shall apply to the violation of a nuisance abatement order.

B. Prior to occupancy of the premises, whether commercial or residential, the property shall be inspected by the appropriate City, state and federal inspectors. The subject premises must be in compliance with all applicable City, state and federal health, safety property maintenance and building codes. No occupancy shall occur unless all code violations are abated.

C. Any property, commercial or residential, which had previously been exempt from or "grandfathered in" and not subject to compliance with current health, safety, zoning, property maintenance and building codes will be deemed to have forfeited that status and must be in total compliance with all applicable City, state and federal health, safety property maintenance and building codes. The property shall be subject to a full occupancy inspection. No occupancy shall occur unless all code violations are abated.

D. Any licenses, variances, permits or certificates, whether business, occupancy or building code which pertain to the subject premises and were in effect at the time of an order of closure of the premises are deemed revoked or abandoned. (1994 C., § 15.42.090; Ord. No. 69730, § 9, 4-18-2014.)

Chapter 15.44

AGGRESSIVE BEGGING

Prior history: Ord. 62974; 1948 C. Ch. 46 § 6; 1960 C. § 766.010

Sections:

15.44.010 Definitions.
15.44.020 Prohibitions.
15.44.030 Penalty for violation.
15.44.040 Exceptions.

15.44.010 Definitions.

A. The following definitions shall apply to the provisions of this chapter:

1. "Aggressive panhandling" means panhandling in the following manner:

a. To approach or speak to a person in such a manner as would cause a reasonable person to believe that the person is being threatened with:

i. Imminent bodily injury; or

ii. The commission of a criminal act upon the person or another person, or upon property in the person's immediate possession;

b. To persist in panhandling after the person solicited has given a negative response;

c. To block, either individually or as part of a group of persons, the passage of a solicited person;

d. To touch a solicited person without the person's consent;

e. To render any service to a motor vehicle, including, but not limited to, any cleaning, washing, protecting, guarding or repairing of said vehicle or any portion thereof, without the prior consent of the owner, operator or occupant of such vehicle, and thereafter asking, begging or soliciting alms or payment for the performance of such service, regardless of whether such vehicle is stopped, standing or parked on a public street or upon other public or private property; or

f. To engage in conduct that would reasonably be construed as intended to intimidate, compel or force a solicited person to make a donation.

2. "Charitable organization" means any nonprofit community organization, fraternal, benevolent, educational, philanthropic, or service organization, or governmental employee organization, which solicits or obtains contributions solicited from the public for charitable purposes or holds any assets solely for charitable purposes.

3. "Panhandling" means any solicitation in person, by a person, other than a charitable organization, for an immediate grant of money, goods or any other form of gratuity from another person(s) when the person making the request is not known to the person(s) who is the subject of the request. The term "panhandling" shall not mean the act of passively standing or sitting with a sign or other indicator that a donation of money, goods or any other form of gratuity is being sought without any vocal request other than a response to an inquiry by another person. (1994 C., § 15.44.010; Ord. No. 67918, § 2, 2008.)

15.44.020 Prohibitions.

A. It shall be unlawful for any person to engage in aggressive panhandling.

B. It shall be unlawful for any person to engage in the act of panhandling when either the panhandler or the person being solicited is located in, on, or at any of the following locations:

1. In any public transportation vehicle;

2. Within 50 feet of an automatic teller machine or entrance to a bank;

3. Within 30 feet of a point of entry to or exit from any building open to the public, including commercial establishments;

4. At any sidewalk cafe;

5. Within 50 feet of any public or private school;

6. At any bus stop, train stop, or cab stand;

7. Within 20 feet of any crosswalk;

8. Within any municipal or government-owned building, park, golf course, or playground.

C. It shall be unlawful for any person to engage in the act of panhandling on private property or inside a business without written permission from the owner.

D. It shall be unlawful for any person to engage in the act of panhandling after 8:00 p.m. and before 7:00 a.m. during any dates on which Daylight Saving Time is in effect; or after 7:00 p.m. and before 7:00 a.m. during any dates on which Daylight Saving Time is not in effect.

E. It shall be unlawful for any person to panhandle in a group of two (2) or more persons. (1994 C., § 15.44.020; Ord. No. 67918, § 3, 2008.)

15.44.030 Penalty for violation.

A. Every person issued a citation under this section shall be offered immediate referral and direction to an appropriate community outreach service program.

B. Penalties for violations of this section shall be as follows:

1. First violation: Upon a first violation, the person accused of violating this chapter shall be issued a warning ticket, which shall not include a summons to appear before a court of proper jurisdiction.

2. Second violation:

a. Upon a second violation, the person accused of violating this chapter shall be issued a written citation, including a summons to appear before a court of proper jurisdiction for disposition of the case.

b. Upon conviction for a second violation, the violator may be sentenced to one or more of the following: the performance of up to 30 days of community service, mandatory enrollment and completion of a community outreach service program, and/or a monetary fine not less than fifty ($50.00) dollars but no more than five hundred ($500.00) dollars.

c. The court should consider completion of a community outreach service program in determining the appropriate sentence.

3. Third violation, and subsequent violations:

a. Upon a third violation, and subsequent violations, the person accused of violating this chapter shall be issued a written citation, including a summons to appear before a court of proper jurisdiction for disposition of the case.

b. Upon conviction for a third offense, and subsequent offenses, the violator may be sentenced to one or more of the following: the performance of up to 30 days community service, mandatory enrollment and completion of a community outreach service program, a monetary fine not to exceed five hundred ($500.00) dollars; and/or imprisonment not to exceed 30 days.

c. The court should consider completion of a community outreach service program in determining the appropriate sentence. (1994 C., § 15.44.030; Ord. No. 67918, § 4, 2008.)

15.44.040 Exceptions.

Nothing in this chapter shall abrogate or abridge provisions of Ordinance 67389, concerning solicitations made by charitable organizations, or the laws of state and federal government, or any law regulating nonprofit, religious, educational, civic or benevolent organizations. (1994 C., § 15.44.040; Ord. No. 67918, § 5, 2008.)

Chapter 15.46

DISTURBANCES

Sections:

15.46.010 Disturbing lawful assembly.

15.46.020 Disturbing religious worship.

15.46.030 Disturbing the peace.

15.46.040 Disturbing prisoners.

15.46.010 Disturbing lawful assembly.

Any person who shall, in this City, disturb any lawful assemblage of people by rude and indecent behavior shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 18; 1960 C., § 762.020; 1994 C., § 15.46.010.)

McQuillin:

24.98 et seq. Preservation of peace and order

15.46.020 Disturbing religious worship.

Any person who shall, in this City, disquiet or disturb any congregation or assembly met for religious worship, by making a noise, or by rude or indecent behavior, or profane discourses within their place of worship, or so near the same as to disturb the order or solemnity of the meeting, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 19; 1960 C., § 762.010; 1994 C., § 15.46.020.)

RSMo:

RSMo 574.010 (2016) Peace disturbance

McQuillin:

24.104 Disturbance arising from religious activities

15.46.030 Disturbing the peace.

Any person who shall disturb the peace of others by noisy, riotous or disorderly conduct, or by violent, tumultuous, offensive or obstreperous conduct or carriage, or by loud and unusual noises, or by unseemly, profane, obscene, indecent, lewd or offensive language, calculated to provoke a breach of the peace, or by assaulting, striking or fighting another in any park, street, alley, highway, thoroughfare, public place or public resort within the City, or any person who, in the City, shall permit any such conduct in or upon any house or premises owned or possessed by him or under his management or control, so that others in the vicinity are disturbed thereby, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 20; 1960 C., §§ 762.030, 762.040; 1994 C., § 15.46.030.)

RSMo:

RSMo 574.010 (2016) Peace disturbance

City Counselor Ops.: 8629, 9626

Cases:

The peace of an individual cannot be disturbed unless the individual is within the peace. *City of St. Louis v. Sage,* 254 S.W. 2d 252 (1953).

Disturbing the peace ordinance of the City of St. Louis was not void on the ground that it was inconsistent with state statute on same subject. *City of St. Louis v. Page,* 259 S.W. 2d 98 (1953).

Ordinance which makes it a misdemeanor to disturb the peace by violent conduct or by profane or offensive language, calculated to provoke a breach of the peace, is a valid exercise of the city's power. *City of St. Louis v. Slupski,* 254 Mo 309, 162 S.W. 155 (1913).

Evidence that defendant was a picket and handcuffed himself to a store revolving door, thus attracting a crowd, was sufficient for conviction of disturbing the peace. *City of St. Louis v. Goldman,* 467 S.W. 2d 99 (1971).

Fact that city ordinance on disturbing the peace did not require that act to be done "willfully" did not make ordinance inconsistent with statute. *City of St. Louis v. Goldman,* 467 S.W. 2d 99 (1971).

Mere fact that defendant disturbed the peace by noisy, riotous and disorderly verbal conduct in a public place was not sufficient for conviction under this ordinance where there was no finding that the verbal conduct was intended to and was reasonably likely to incite others to violence. *City of St. Louis v. Tinker,* 542 S.W. 2d 512 (1976). This ordinance is not unconstitutionally vague or overbroad. *City of St. Louis v. Tinker,* 542 S.W. 2d 512 (1976).

McQuillin:

24.98 Disturbing the peace and disorderly conduct

15.46.040 Disturbing prisoners.

No person shall disturb the peace of the citizens of the City who may be in the City Jail, Municipal Courts Building, Human Development Corporation Building, at, in or near Kiel Auditorium, or Washington Square by loud or unusual language in an attempt to communicate with any inmate or inmates of the City Jail, through any window, door, or other opening by voice, signal, or written messages, or attempt to pass or receive any article to any inmate of the jail through any window, door or opening. (1960 C., § 762.050; 1994 C., § 15.46.040; Ord. No. 56844, § 2, 1974.)

Chapter 15.48

RESERVED

Editor's Note:

Ord. No. 71934, § 4, approved November 26, 2024, amended the Code by repealing former Ch. 15.48, §§ 15.48.010—15.48.030, which pertained to loitering, and derived from the 1948 Code, Ch. 46, § 39; the 1960 Code, § 765.010; the

1994 Code, §§ 15.48.010—15.48.030; Ord. No. 47396, § 1, approved in 1955; and Ord. No. 61415, §§ 2—4, approved in 1989.

Chapter 15.49

CURFEW FOR PRATHER, DEVONSHIRE AND NOTTINGHAM AVENUES

Sections:

15.49.010 Loitering prohibited.

15.49.020 Penalty for violation.

15.49.010 Loitering prohibited.

No person shall loiter, idle, wander, stroll, play or otherwise be in or upon the area, which is bounded by Prather Avenue on the East, Devonshire Avenue on the North, and Nottingham Avenue on the South between the hours of ten p.m. and six a.m. throughout the year. (1994 C., § 15.49.010; Ord. No. 61476, § 1, 1989.)

15.49.020 Penalty for violation.

Any person convicted of violating this chapter shall be fined not less than one dollar ($1.00) nor more than five hundred dollars ($500.00). (1994 C., § 15.49.020; Ord. No. 61476, § 2, 1989.)

Chapter 15.50

NOISE

City Counselor Ops.: 8009, 8145, 8516, 8826, 8874, 9421, 9560, 10002

McQuillin:

24.101 Ordinances against unusual noises

Sections:

15.50.010 Prohibited.

15.50.020 Blowing horns.

15.50.030 Playing of sound devices prohibited—When.

15.50.031 Playing sound devices in motor vehicles prohibited—When.

15.50.032 Penalty for violation of Sections 15.50.030 and 15.50.031.

15.50.033 Vehicle impoundment.

15.50.040 Pets.

15.50.050 Use of vehicle.

15.50.060 Blowing whistles—Use of steam.

15.50.070 Exhaust discharge.

15.50.080 Construction and demolition—Definitions.

15.50.081 Construction and demolition prohibited—When.

15.50.082 Penalty for violation of Sections 15.50.080 and 15.50.081.

15.50.090 Noises near schools, hospitals and churches.

15.50.100 Drums and loud speakers.

15.50.110 Penalty for violation of Sections 15.50.010—15.50.100.

15.50.120 Band music in streets.

15.50.140 Use of bells for attracting people to auctions.

15.50.150 Locomotive bells.

15.50.010 Prohibited.

Subject to the provisions of this chapter, the creation of any unreasonably loud, disturbing or unnecessary noise in the City is prohibited. The acts in this chapter, among others, are declared to be loud, disturbing and unnecessary noises in violation of this chapter, but such enumeration shall not be exclusive. (1948 C., Ch. 44, § 1(part); 1960 C., § 760.010; 1994 C., § 15.50.010.)

15.50.020 Blowing horns.

The sounding of any horn or signal device on any streetcar, motorbus, motorcycle, automobile or other vehicle while not in motion on a public street or highway, except as a danger signal if another vehicle is approaching apparently out of control, or if in motion, the excessive or prolonged sounding except only as a danger signal, after or as brakes are being applied and deceleration of the vehicle is intended; the creation by means of any such signal device of any unreasonably loud or harsh sound; and the sounding of such device for an unnecessary or unreasonable period of time is prohibited. (1948 C., Ch. 44, § 1(1); 1960 C., § 760.020; 1994 C., § 15.50.020.)

15.50.030 Playing of sound devices prohibited—When.

A. No person shall play any radio, music player, television, audio system or musical instrument upon private property at a volume louder than is necessary for convenient, normal hearing of the person or persons who are on the property on which the device is being used or operated and who are voluntary listeners.

B. Except for any lawful event occurring on a periodic basis at a venue where people assemble and

that is anticipated and lawfully allowed to occur on a periodic basis and persons operating motor vehicles under Section 15.50.031 of this chapter, no person shall play any radio, music player, or audio system upon public property at a volume which is plainly audible at a distance greater than seventy-five (75) feet from the source of the sound.

C. Any person participating in any lawful event as provided for in Subsection B of this section may generate sound in excess of the limitations in this section only if the sound generated does not exceed reasonable sound levels in light of the nature of the event, its time, and the character of the surrounding neighborhood. (1948 C., Ch. 44, § 1(2); 1960 C., § 760.030; 1994 C., § 15.50.030; Ord. No. 67233, § 1, 2006; Ord. No. 67002, § 2, 2006; Ord. No. 65700, § 1, 2002; Ord. No. 50038, § 1, 1960.)

15.50.031 Playing sound devices in motor vehicles prohibited—When.

No person shall play, use, operate or permit to be played, used or operated, any radio, tape recorder, cassette player or other device for receiving broadcast sound or reproducing recorded sound if the device is located in any motor vehicle and the sound generated by the device is clearly audible to persons other than the occupants of such vehicle. This section shall not apply to any person participating in a parade or public assembly for which a permit has been obtained from the City of St. Louis. (1994 C., § 15.50.031; Ord. No. 67002, § 3, 2006.)

15.50.032 Penalty for violation of Sections 15.50.030 and 15.50.031.

A. Any person who violates the provisions of Section 15.50.030 of this chapter shall be subject to a fine of not less than $100.00 for a first offense, not less than $250.00 for a second offense committed within a one-year period, and not less than $500.00 for a third or subsequent offense committed within a one-year period. The Court may, in lieu of a fine, impose not less than twenty (20) hours of community service for the first offense; not less than thirty (30) hours of community service for the second offense; and not less than sixty (60) hours of community service for the third or any subsequent offense.

B. Any person who violates the provisions of Section 15.50.031 of this chapter shall be subject to a fine of not less than $250.00 for a first offense and not less than $500.00 for a second or subsequent offense committed within a one-year period. The Court may, in lieu of a fine, impose not less than thirty (30) hours of community service for the first offense; and not less than sixty (60) hours of community service for the second or any subsequent offense.

C. A motor vehicle that is used in the violation of Section 15.50.031 of this chapter shall be subject to seizure and impoundment if the sound generated by any device is plainly audible at a distance greater than seventy-five (75) feet horizontally or vertically from the vehicle. The owner of record of such vehicle shall be liable to the City for an administrative penalty of $500.00 in addition to scheduled fees for the towing and storage of the vehicle. (1994 C., § 15.50.032; Ord. No. 67002, § 4, 2006.)

15.50.033 Vehicle impoundment.

Whenever a police officer has probable cause to believe that a vehicle is subject to seizure and impoundment pursuant to Sections 15.50.030 through 15.50.032, the impoundment of such vehicle shall be deemed an emergency removal under the provisions of Section 17.56.020. The police officer shall provide for the towing of the vehicle to a facility controlled by the City or its agents. When the vehicle is towed, the police officer shall notify the person who is found to be in control of the vehicle at the time of the alleged violation, if there is such a person, of the fact of the seizure and of the vehicle owner's right to appeal the impoundment under the provisions of Section 17.56.060. (1994 C., § 15.50.033; Ord. No. 67002, § 5, 2006.)

15.50.040 Pets.

The keeping of any animal, bird or fowl which, by causing frequent or long-continued noise, shall tend to disturb the comfort and repose of any person in the vicinity is prohibited. Any such noise that can be distinctly heard at a distance of more than one hundred feet from its source shall be excessive. (1948 C., Ch. 44, § 1(3); 1960 C., § 760.040; 1994 C., § 15.50.040.)

McQuillin:

24.282 Ordinances against animal noises

15.50.050 Use of vehicle.

The use of any automobile, motorcycle, streetcar or vehicle, so out of repair, so loaded or in such manner as to create loud and unnecessary grating, grinding, rattling or other noise is prohibited. (1948 C., Ch. 44, § 1(4); 1960 C., § 760.050; 1994 C., § 15.50.050.)

15.50.060 Blowing whistles—Use of steam.

The blowing of any steam whistle attached to any stationary boiler, or any other whistle or siren, except to give notice of the time to begin or stop work or as a warning of danger, or the use of steam under pressure for cleaning purposes in any establishment between the hours of ten p.m. and seven a.m., when the windows of the establishment are open, is prohibited. (1948 C., Ch. 44, § 1(5); 1960 C., §§ 760.060, 760.070; 1994 C., § 15.50.060.)

15.50.070 Exhaust discharge.

The discharge into the open air of the blow-down of any steam engine or of the exhaust of any stationary internal combustion engine, or motor vehicle, or of the escape valve from the unloader of any air compressor except through a muffler or other device which will effectively prevent loud or explosive noises therefrom is prohibited. (1948 C., Ch. 44, § 1(6); 1960 C., § 760.080; 1994 C., § 15.50.070.)

15.50.080 Construction and demolition—Definitions.

For purposes of this section and Sections 15.50.081 and 15.50.082, the following definitions shall apply:

A. "Construction" means any land grading, road and utility construction, and the use of any power equipment outside of a building or structure for purposes of site preparation, assembly, erection, repair, alteration or similar actions which generates noise audible at a residential property. "Construction" shall include manual demolition of buildings or structures which generate noise with or without the aid of power equipment.

B. "Demolition" means any dismantling, destruction or removal of buildings, structures, or roadways. (1948 C., Ch. 44, § 1(7); 1960 C., § 760.090; 1994 C., § 15.50.080; Ord. No. 66986, § 2, 2006.)

15.50.081 Construction and demolition prohibited—When.

Construction, demolition and excavation within one thousand (1,000) feet of a residential property, including excavation, demolition, alteration or repair of any building, land clearing, land grading or road and utility construction within one thousand (1,000) feet of a residential property is prohibited before 6:00 a.m. and

after dusk, Monday through Saturday, except in case of an urgent necessity in the interest of public safety for a period of three (3) days. After three (3) days the urgent necessity will be deemed to have elapsed unless a permit has been obtained from the Building Commissioner which allows specific action during any of the hours between 6:00 a.m. and dusk, Monday through Saturday. (1994 C., § 15.50.081; Ord. No. 66986, § 3, 2006.)

15.50.082 Penalty for violation of Sections 15.50.080 and 15.50.081.

Any person who violates Sections 15.50.080 and 15.50.081, or any person who shall permit any such prohibited conduct in or upon any house or premises owned or possessed by such person, or under such person(s) management or control, or permit any employee under such person(s) management or control to engage in such prohibited conduct shall be subject to the following penalties:

A. Upon a plea of guilty or a conviction for a first offense, by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).

B. Upon a plea of guilty or a conviction for any subsequent offense occurring within one year of the first offense, by a fine of not less than two hundred and fifty dollars ($250.00) nor more than five hundred dollars ($500.00).

C. The court may, in lieu of a fine, impose not less than twenty (20) hours of community service for the first offense and not less than thirty (30) hours of community service for any subsequent offense occurring within one year of the first offense. (1994 C., § 15.50.082; Ord. No. 66986, § 4, 2006.)

15.50.090 Noises near schools, hospitals and churches.

The creation of any excessive or unnecessary noise within one hundred fifty feet of any portion of the grounds and premises on which is located a hospital or other institution reserved for the sick, or any church or any school or other institution of learning or any court while the same are in session, which unreasonably interferes with the proper functioning of any such place is prohibited. Conspicuous signs are to be placed in the public highways indicating the zones within which such noises are prohibited. The Director of Streets is authorized and directed to cause to be placed as many signs as necessary to properly indicate such quiet zones and to call attention to the prohibition against excessive and unnecessary noises within such zones. (1948 C., Ch. 44, § 1(8); 1960 C., § 760.100; 1994 C., § 15.50.090.)

15.50.100 Drums and loud speakers.

The use of any drum, loud speaker or other instrument or device for the purpose of attracting attention by creation of noise, or for advertising purposes is prohibited. (1948 C., Ch. 44, § 1(9); 1960 C., § 760.110; 1994 C., § 15.50.100.)

15.50.110 Penalty for violation of Sections 15.50.010—15.50.100.

Any person who shall violate any of Sections 15.50.010 through 15.50.100 or any person who shall permit any such conduct in or upon any house or premises owned or possessed by him, or under his management or control, and shall be punished as follows:

A. Upon a plea of guilty or a conviction for a first offense, by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).

B. Upon a plea of guilty or a conviction for any subsequent offense occurring within one year of the first offense, by a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00).

C. The Court may, in lieu of a fine herein, impose no less than twenty (20) hours of community service for the first offense and no less than thirty (30) hours of community service for any subsequent offense. (1948 C., Ch. 44, § 1(part); 1994 C., § 15.50.110; Ord. No. 63803, § 1, 1996.)

Editor's Note:

Sections 15.50.030 and 15.50.080 have their own penalty clauses which prevail over general penalty clause Section 15.50.110.

15.50.120 Band music in streets.

It is unlawful for any military company, or any procession, or any body of persons accompanied with martial music to march or pass through, or for any person to play on any musical instrument in any house of worship on Sunday during the hours of worship. It is unlawful for any band of music to play in the streets for any procession with advertising devices or to move on the streets without a permit from the Board of Public Service. Nothing herein shall prevent any military company, organized under the laws of the state, from parading with a band of music on any day except Sunday. Any person who shall violate this section shall be guilty

of a misdemeanor. (1948 C., Ch. 44, § 2; 1960 C., § 760.120; 1994 C., § 15.50.120.)

City Counselor Ops.: 7626

McQuillan:

18.15 Ordinances as to noises in public streets

15.50.140 Use of bells for attracting people to auctions.

Any person who shall, in this City, employ any bell man, or use or cause to be used, any bell or other sounding instrument as means of attracting people to an auction or other place, or shall permit any such to be used, for or on his account, shall be guilty of a misdemeanor. (1948 C., Ch. 44, § 4; 1960 C., § 760.140; 1994 C., § 15.50.140.)

15.50.150 Locomotive bells.

The bell of a railroad locomotive may be constantly sounded while the locomotive is approaching and passing through the crossing of a public street or highway, public alley or public sidewalk within the City. The whistle or horn of a railroad locomotive shall not regularly be sounded. (1960 C., § 760.150; 1994 C., § 15.50.150; Ord. No. 54285, § 1, 1966.)

Chapter 15.51

INDUSTRIAL NOISE

Sections:

15.51.010 Definitions.
15.51.020 Applicability of standards established by A.N.S.I.
15.51.030 Permissible noise levels—Standards.
15.51.040 Exceptions.
15.51.050 Notice of violation.
15.51.060 Non-abatement of violations.
15.51.070 Board of Noise Control Appeals and Variance Review.
15.51.080 Variances.
15.51.090 Penalty clause.

15.51.010 Definitions.

For purposes of this chapter the following words and phrases are herein defined:

A. A-weighted sound pressure level: A weighted sound pressure level as measured with the A-weighting network of a sound level meter. The unit of measurement is dB(A).

B. Ambient noise level: The A-weighted sound pressure level of all the encompassing noise associated with a given environment, being usually a composite of sounds from many sources.

C. A.N.S.I.: The American National Standards Institute or its successor bodies.

D. Board: The Appeal Board established by Section 15.51.070.

E. Boundary: The line of demarcation which separates the real property owned by one person from that owned by another person.

F. Construction activity: Any or all activity necessary or incidental to the erection, demolition, assembling, repairing, altering, installing or equipping of public or private buildings, private or public parks, premises, utility lines, and private or public highways, roads or streets, including land clearing, grading, excavating and filling.

G. Construction device: Any device used in construction, including, but not limited to, any air compressor, pile driver, manual tool, bulldozer, pneumatic hammer, steam shovel, derrick, crane, steam or electric hoist.

H. Daytime hours: 7:00 o'clock a.m. to 10:00 o'clock p.m., prevailing local time.

I. Director: The Director of the Department of Health and Hospitals or his duly authorized agents.

J. Discrete tone: A noise measured on a one-third octave band analyzer which is ten (10) decibels greater than each of the adjacent one-third octave bands.

K. Emergency work: Work necessary to restore property to a safe condition following a public calamity, or work required to protect person or property from an imminent exposure to danger.

L. Emergency signal device: Any gong, siren, whistle or any air horn or similar device when used on any vehicle designated as an emergency vehicle by ordinance or by Missouri statute, or used in connection with an emergency warning system, or used in connection with a warning system intended to produce a sound signal upon unauthorized entrance by a person into a building or motor vehicle.

M. Impulsive noise: A noise, containing excursions usually of no more than one second, the A-weighted sound pressure level of which exceeds the ambient noise level by more than twenty (20) dB(A), when measured by the fast meter characteristic of a sound level meter.

N. Motor vehicle: Any self-propelled vehicle not operated exclusively on rails.

O. Nighttime hours: 10:00 o'clock p.m. to 7:00 o'clock a.m., prevailing local time.

P. Perception threshold: The minimum vibrational motion necessary to cause awareness of the existence of the vibration by direct means, including, but not limited to, sensation by touch or visual observations. Any vibration which produces more than five-tenths (0.5) inch/second root mean square vertical velocity shall be deemed sufficient to cause the awareness of the existence of the vibration by direct means.

Q. Period of measurement: Any continuous sixty-minute period during which observations of stationary noise sources are made and measurements of noise levels are taken.

R. Person: Any human being, firm, association, organization, partnership, business, trust, corporation, company, contractor, supplier, installer, user, owner, or operator and shall include any municipal corporation or its officers or employees.

S. Sound: An audible oscillation of pressure in air.

T. Sound level meter: Any instrument including a microphone, an amplifier, an output meter, and frequency weighting networks for the measurement of sound pressure levels in a specified manner which complies with Type 2 or better standards established in the A.N.S.I. S1.4-1971 "Specification for Sound Level Meters."

U. Sound pressure level: Twenty times the logarithm to the base 10 of the ratio of the root mean square pressure of a sound to the standard reference pressure which is twenty (20) micropascals. The unit of measurement is the decibel (dB).

V. Stationary noise source: Any equipment, motor vehicle, aircraft, or facility, fixed or movable, capable of emitting audible sound.

W. Vehicular way: A paved or unpaved area used by motor vehicles, including, but not limited to, roads, streets, highways, alleys and parking lots. (1994 C., § 15.51.010; Ord. No. 68130, § 2, 10-26-2008; Ord. No. 64566, § 1, 1998.)

15.51.020 Applicability of standards established by A.N.S.I.

Unless otherwise specified herein, or specified in regulations promulgated by the Director under this Code, the acoustical terminology, the reference pressure, instrument specifications, and calibrations and methods for measurements of sound pressure levels shall be in conformance with the definitions and provisions contained in the documents designated as A.N.S.I. S1.1-971, S.4-1971, Sl.11-1966 (R1971 and S1.13-1971, of which one copy of each document is filed in the office of the Register of the City of St. Louis. (1994 C., § 15.51.020; Ord. No. 68130, § 3, 10-26-2008; Ord. No. 64566, § 2, 1998.)

15.51.030 Permissible noise levels—Standards.

A. No person shall operate or permit to be operated any stationary noise source which emits noise in such a manner that the level of the noise emitted, when measured at any point outside the boundary of the property upon which the stationary noise source is located using the slow meter characteristic and the A-weighting network of the sound level meter, exceeds the levels set forth in Table I below or exceeds the limit set forth in this chapter. When the noise emitted is measured upon property which is located in a different land use category than the property upon which the stationary noise source is located, the levels applicable to the property where the noise emitted is measured shall be used to determine if a violation exists. If more than one use exists on the property where the noise emitted is measured such that more than one land use category would be applicable to the property, then the levels set forth in the least restrictive applicable land use category of Table I shall be used to determine if a violation exists.

B. If the stationary noise source emits noise containing a discrete tone, the permissible levels shall be 5dB lower than the applicable levels of Table I.

C. If the stationary noise source emits impulsive noise the levels of Table I shall be lowered by 5dB. A violation of this Code shall exist if the level of the impulsive noise emitted exceeds the applicable levels of Table I, as modified by this subsection, when the measurement is made using the fast meter characteristic and the A-weighting network of the sound level meter or if the level of the impulsive noise emitted exceeds the limit set forth in Section 625.0550.6.

D. In the event the stationary noise source emits impulsive noise containing a discrete tone, the modifications of Table I set forth in Subsections B and C herein shall be cumulative.

E. If the ambient noise level exceeds the level of the noise emitted from the stationary noise source for

one or more periods of time during the period of measurement, then for any such period of time the level of the noise emitted from the stationary noise source shall be deemed to be lower than the level which is permitted for sixty (60) minutes during the period of measurement in the applicable land use category and for the applicable time of day.

F. If, during the period of measurement, noise shall be emitted from a stationary noise source for periods of time at two (2) or more different levels, a violation of this Code shall exist if the sum of the following fractions C1/T1 + C2/T2 + ...Cn/Tn exceeds the unit number 1. For purposes of this calculation Cn shall equal the actual time period that noise is emitted at each measured noise level and Tn shall equal the period of time that noise is permitted under Table I to be emitted at each measured noise level. Provided, however, if: (1) the ambient noise level exceeds the level of noise emitted from the stationary noise source for one or more periods of time during the period of measurement; or, (2) the level of the noise emitted from the stationary noise source is lower than the level of noise which is permitted in Table I for sixty (60) minutes during the period of measurement in the applicable land use category and for the applicable time of day for one or more periods of time during the period of measurement, then for the purpose of the calculation set forth in this subsection, for each such period of time, the term Cn shall be deemed to be zero (0) and the fraction Cn/Tn shall be zero (0).

Table I

1. Zoning Districts Zoned A—E

Daytime Hours	
Tn*	**(dB(A))****
60	55 or less
30	56—58
15	59—61
8	62—64
4	65—67
2	68—70
0	71 or greater

Nighttime Hours	
Tn*	**(dB(A))****
60	50 or less
30	51—53
15	54—56
8	57—59
4	60—62
2	63—65
0	66 or greater

*Total Duration of Time Noise to be Emitted from Noise Source During Period of Measurement (Minutes).

**A-Weighted Sound Pressure Level.

2. Zoning Districts Zoned F + G

Daytime Hours	
Tn*	**(dB(A))****
60	65 or less
30	66—68
15	69—71
8	72—74
4	75—77
2	78—80
0	81 or greater

Nighttime Hours	
Tn*	**(dB(A))****
60	60 or less
30	61—63
15	64—66
8	67—69
4	70—72
2	73—75
0	76 or greater

*Total Duration of Time Noise to be Emitted from Noise Source During Period of Measurement (Minutes).

**A-Weighted Sound Pressure Level.

3. Zoning Districts Zoned H—I

All Hours	
Tn*	**(dB(A))****
60	70 or less
30	71—73
15	74—76
8	77—79
4	80—82
2	83—85
0	86 or greater

*Total Duration of Time Noise to be Emitted from Noise Source During Period of Measurement (Minutes).

**A-Weighted Sound Pressure Level.

4. Zoning Districts Zoned J—K

All Hours	
Tn*	**(dB(A))****
60	80 or less
30	81—83
15	84—86
8	87—89
4	90—92
2	93—95
0	96 or greater

*Total Duration of Time Noise to be Emitted from Noise Source During Period of Measurement (Minutes).

**A-Weighted Sound Pressure Level. (1994 C., § 15.51.030; Ord. No. 68130, § 4, 10-26-2008; Ord. No. 64566, § 3, 1998.)

15.51.040 Exceptions.

To the extent provided in this section the provisions of this chapter shall not apply to:

A. The operation of construction devices, with sound control devices equivalent to or better than the original equipment, used in construction activities during daytime hours.

B. The repair, maintenance or construction of public facilities of the State of Missouri or the City of St. Louis, or such public or quasi-public municipal corporations as may be established under the constitution or laws of the State of Missouri.

C. Emergency work to repair or maintain private utility facilities.

D. Emergency work to repair equipment or facilities damaged or rendered inoperable as a direct result of unavoidable upset conditions providing such occurrence is reported to the Director within twenty-four (24) hours after the occurrence.

E. The operation of motor vehicles on a vehicular way with such control devices equivalent to or better than the original equipment.

F. The operation of railway equipment and vehicles operated exclusively on rails.

G. The necessary operation of emergency signal devices.

H. Electric power distribution transformers within a distance of fifty (50) feet from the base of the support pole or from the fence line. In addition, electric power distribution transformers shall not be subject to the provisions of Section 15.51.010.B.

I. The operation of lawn care maintenance equipment with sound control devices equivalent to or better than original equipment from 7:00 a.m., prevailing local time to sunset.

J. All single- and multifamily residential air-conditioning units, HVAC systems, cooling towers and/or heating systems. In addition, nothing in this provision shall be construed to preclude the City, or any other person, in seeking relief for a nuisance violation under any other provision of law for such systems.

K. The enforcement of the provisions of Chapters 15.50 and 17.78 of the Revised Code of the City of St. Louis. (1994 C., § 15.51.040; Ord. No. 68130, § 5, 10-26-2008; Ord. No. 64566, § 4, 1998.)

15.51.050 Notice of violation.

Whenever the Health Commissioner determines that a violation of any provision of this Code exists, he shall issue a written notification to the person responsible for the alleged violation. The notification shall set forth the nature of the violation and shall direct that the violation must be abated within the time period specified by the Health Commissioner, which time period shall not exceed sixty (60) days from the date the notice is sent; provided, however, if the violation cannot be abated within the time period specified, the Health Commissioner may extend the time period for compliance for a reasonable period of time upon submission of an acceptable abatement plan by the person responsible for the violation. In determining whether the abatement plan is acceptable, the Health Commissioner's consideration shall include, but shall not be limited to:

A. The sufficiency of all construction plans to reduce noise or vibration levels; and

B. The sufficiency of the design criteria for any equipment changes to reduce noise or vibration levels; and

C. The length of time necessary to perform all work to abate the violation. (1994 C., § 15.51.050; Ord. No. 68130, § 6, 10-26-2008; Ord. No. 64566, § 5, 1998.)

15.51.060 Non-abatement of violations.

Any violation which is not abated within the time period specified by the Health Commissioner, including any extensions, shall be referred to the City Counselor for prosecution, unless such violation has been appealed to the Board of Noise Control Appeals and Variance Review as provided in Section 15.51.070. Each day that a non-abated violation continues after the date it has been referred to the City Counselor shall consti-

tute a separate violation of this chapter. (1994 C., § 15.51.060; Ord. No. 68130, § 7, 10-26-2008; Ord. No. 64566, § 6, 1998.)

15.51.070 Board of Noise Control Appeals and Variance Review.

A. The Mayor shall appoint a Board of Noise Control Appeals and Variance Review consisting of three members. One member shall be an attorney licensed in the State of Missouri and one shall be a professional engineer registered in the State of Missouri. The members shall be residents of the City. The members shall be appointed for terms of four years and shall be compensated as prescribed by the Civil Service Commission. To the maximum extent possible, the members should not have a substantial interest in any business either subject to regulation by this chapter or engage in the manufacture, sale or distribution of air pollution control devices.

B. The Mayor shall designate one of the members of the Board to serve as Chairman. The Health Commissioner shall serve as Secretary of the Board, but shall have no vote on the Board.

C. The Board shall advise the Health Commissioner on standards, rules and regulations and such other matters as are submitted to it by him.

D. The Board shall conduct hearings on appeals from actions and orders of the Health Commissioner. Notice of appeal from an order or decision of the Commissioner shall be filed within 10 days from the date of said order or decision. Fifty dollars ($50.00) shall accompany the notice of appeal which shall be paid to the Secretary of the Board for deposit with the Treasurer of the City.

E. 1. The Board member shall have authority to administer oaths and do all other necessary and proper duties in the conducting of a hearing.

2. At a Board hearing the parties involved and the Commissioner may appear with counsel, may file written arguments and may make oral arguments, offer testimony or cross examine witnesses, or take any combinations of such actions. The Board shall have authority to make such rules and regulations as are necessary to perform its functions and duties under this chapter. A copy of such rules and regulations shall be available to the general public.

3. All testimony taken before the Board shall be under oath and recorded steno graphically, except that the Board may require the submission of voluminous or detailed or technical testimony in writing under oath. The transcript of records shall be made available to any member of the public or to any party upon payment of the fair charges therefor.

4. Upon the request of any parties, or on the motion of any member of the Board, the Board shall issue subpoenas requiring the attendance and testimony of witnesses and the production of books and records relevant to any matter involved. Every subpoena shall be served by the City Marshal and shall be obeyed.

F. 1. The Board may affirm, modify, or rescind any action of the Commissioner, if it finds that there is an error in an order or decision of the Commissioner. The concurrence of any two members who were present at the hearing or who have read the transcript of the hearing shall be necessary for such decision regarding the order or decision of the Commissioner.

2. The Board shall notify all parties of record and their counsel in writing by United States mail of its decision. The Commissioner may issue appropriate orders requiring compliance with the decision of the Board. Any decision of the Board rendered pursuant to this section shall be final and any appeal therefrom shall be made pursuant to the Administrative Procedures Act as set out in RSMo Ch. 536. (1994 C., § 15.51.070; Ord. No. 68130, § 8, 10-26-2008; Ord. No. 64566, § 7, 1998.)

15.51.080 Variances.

A. Any person who owns or is in control of any plant, building, structure, process or equipment may submit a petition to the Health Commissioner for a variance from the provisions of this chapter pertaining to sound levels. The petition shall be accompanied by a fee of $50.00 and shall include the following information:

1. The name, address and telephone number of the petitioner, or other person authorized to receive service of notices;

2. The type of business or activity involved in the application and the street address at which it is conducted;

3. A brief description of the article, machine, equipment or other contrivance or process involved in the sound level emissions occurring therefrom;

4. Each petition shall be signed by the petitioner or by some person on his behalf, and where the person signing is not the petitioner it shall set forth his authority to sign;

5. The section, rule or order complained of;

6. The facts showing why compliance with the section, rule or order is unreasonable;

7. For what period of time the variance is sought and why;

8. The damage or harm resulting or which would result to the petitioner from compliance with such section, rule or order;

9. The requirements which the petitioner can meet and the date when the petitioner can comply with such requirements including the sound levels which will result;

10. The advantages and disadvantages to the residents of the area resulting from requiring compliance or resulting from granting a variance;

11. Whether operations under such variance, if granted, would constitute a nuisance;

12. Such other information and data required by rule or regulation of the Board enacted in conformity with the terms, conditions, and limitations of this chapter. The Health Commissioner or his authorized representative shall promptly investigate such petition and submit it with a recommendation to the Board as to the disposition thereof.

B. The Board may grant such variance if it finds that:

1. The granting of such variance would not constitute an immediate hazard to public health or safety; and

2. Compliance with the terms, conditions, and limitations of this chapter from which variance is sought would result in an arbitrary and unreasonable taking of property or in the practical closing and eliminating of any lawful business, occupation or activity, in either case without sufficient corresponding benefit or advantage to the people.

C. No variance shall be granted pursuant to this section except after public hearing on due notice and until the Health Commissioner has considered the relative interests of the applicant, other owners of property likely to be affected by the proposed sound levels and the general public.

D. Variances may be granted for such period of time and under such terms and conditions as shall be specified by the Board. Variances may be renewed by the Board upon application made at least sixty (60) days prior to the expiration of the term. Renewal application shall be considered in the same manner as the initial petition for variance was considered by the Board.

E. A variance or renewal thereof shall not be a vested right of the applicant or holder thereof.

F. Such a variance may require gradual decrease of the sound levels during the variance period and the making of periodic reports of the improvement program and on compliance with the terms and conditions attached to the variance, and such a variance may be revoked or modified for failure to comply with the terms and conditions attached thereto or with any improvement program or for failure to make a periodic report, if such is required.

G. Nothing in this section and no variance or renewal granted pursuant hereto shall be construed to prevent or limit the application of the emergency provisions and procedures of this chapter. (1994 C., § 15.51.080; Ord. No. 68130, § 9, 10-26-2008; Ord. No. 64566, § 8, 1998.)

15.51.090 Penalty clause.

A. Any person found guilty or who enters a plea of guilty to a violation of any of the provisions of this chapter shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or both such fine and imprisonment. Each day upon which any violation of this chapter occurs shall constitute a separate offense.

B. The City Counselor is authorized to seek equitable relief in the Circuit Court to require any person in violation of the provisions of this chapter to comply with the standards set forth herein. (1994 C., § 15.51.090; Ord. No. 68130, § 10, 10-26-2008; Ord. No. 64566, § 9, 1998.)

Chapter 15.52

UNLAWFUL ASSEMBLIES

RSMo:

RSMo 574.040 (2016) Unlawful assembly

McQuillin:

24.571 Loitering, idling and congregating in streets

Sections:

15.52.010 Defined.

15.52.010 Defined.

Any two persons who shall, in this City, assemble together, or, being assembled, shall act in concert to do any unlawful act with force or violence, against the property of this City, or the person or property of another, or against the peace or to the terror of others,

and shall make any movement or preparation therefor, and every person present at such meeting or assembly, who shall not endeavor to prevent the commission or perpetration of such unlawful act, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 80; 1960 C., §§ 763.010, 763.020; 1994 C., § 15.52.010.)

City Counselor Ops.: 9626

Chapter 15.54

UNLAWFUL CONDUCT AT ATHLETIC EVENTS

Sections:

15.54.010 Throwing articles.
15.54.020 Disturbing the peace of others.
15.54.030 Spectator going onto field.
15.54.040 Reading chapter to spectators.
15.54.050 Penalty for violation.
15.54.060 Penalty for second violation—Stay of sentence.

15.54.010 Throwing articles.

No person who is a spectator at any athletic event or exhibition shall throw, toss or deposit any bottle, can, metal, paper or debris or thing of any type or nature whatsoever onto the playing field, playing diamond, playing court, track, ring, stage, or any other playing or exhibition area, or any other restricted area immediately adjacent thereto, or at any person participating as a player, official or promoter or employee thereof. (1960 C., § 802.010; 1994 C., § 15.54.010; Ord. No. 61977, § 2, 1990; Ord. No. 60029, § 2, 1986; Ord. No. 52137, § 2, 1963.)

15.54.020 Disturbing the peace of others.

No person who is a spectator at an athletic event or exhibition where an admission fee is charged, shall disturb the peace of others by riotous or disorderly conduct; or by profane, obscene, indecent, lewd or offensive language, calculated to provoke a breach of the peace; or by violent, tumultuous, offensive or obstreperous conduct; or by assaulting, striking or fighting another at the athletic event. (1994 C., § 15.54.020; Ord. No. 61977, § 3, 1990.)

15.54.030 Spectator going onto field.

No person who is a spectator at any athletic event or exhibition where an admission fee is charged, shall go onto the playing field, playing diamond, playing court, track, ring, stage, or any other playing or exhibition area, or any other restricted area immediately adjacent thereto, designated as restricted by the promoter of the event or exhibition, without first obtaining the permission of the promoter thereof. (1960 C., § 802.020; 1994 C., § 15.54.030; Ord. No. 61977, § 4, 1990; Ord. No. 60029, § 3, 1986; Ord. No. 52137, § 3, 1963.)

15.54.040 Reading chapter to spectators.

Every person promoting any athletic event or exhibition to which the public is admitted and where a fee is charged, shall announce to the spectators before commencing the event or exhibition the contents of this chapter and the penalties for violation of this chapter. (1960 C., § 802.030; 1994 C., § 15.54.040; Ord. No. 61977, § 5, 1990; Ord. No. 60029, § 4, 1986; Ord. No. 52137, § 4, 1963.)

15.54.050 Penalty for violation.

Any person who shall violate the provisions of Sections 15.54.010, 15.54.020 and 15.54.030 shall upon the conviction be fined not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than thirty (30) days or by both fine and imprisonment. (1960 C., § 802.040; 1994 C., § 15.54.050; Ord. No. 61977, § 6, 1990; Ord. No. 60029, § 5, 1986; Ord. No. 52137, § 5, 1963.)

15.54.060 Penalty for second violation—Stay of sentence.

Any person who shall violate the provisions of Sections 15.54.010, 15.54.020 and 15.54.030 for a second time within any consecutive 12-month period, upon conviction thereof, shall be sentenced to imprisonment for not less than twenty (20) nor more than forty-five (45) days. Provided further that the City Court nor other court of appellant jurisdiction over any City Court shall not stay the execution of such sentence, or any part hereof, nor shall any such court grant probation or parole to any person convicted under the provisions of this chapter and notwithstanding the provisions of Chapters 16.04 and 16.08. (1960 C., § 802.050; 1994 C., § 15.54.060; Ord. No. 61977, § 7, 1990; Ord. No. 57130, § 1, 1976.)

Chapter 15.55

CROSSING BARRICADE OR POLICE LINE

Sections:

15.55.010 Prohibited.
15.55.020 Violation—Penalty.

15.55.010 Prohibited.

No person shall cross or breach a lawfully erected barricade or police line. (1994 C., § 15.55.010; Ord. No. 63974, § 1, 1997.)

15.55.020 Violation—Penalty.

A. Any person found guilty of violating Section 15.55.010 shall be fined an amount of not less than $100.00 nor more than $500.00.

B. The judge may, in lieu of fine, impose no less than 20 hours' community service for persons convicted of violating Section 15.55.010 of this chapter. (1994 C., § 15.55.020; Ord. No. 63974, § 2, 1997.)

Chapter 15.56

UNLAWFUL CONDUCT INVOLVING LABOR DISPUTES

Sections:

15.56.010 Employing strikebreakers.
15.56.020 Penalty for violation.

15.56.010 Employing strikebreakers.

It is unlawful for any person, firm, or corporation, not directly involved in a labor dispute involving a work stoppage or in a labor dispute, strike or lockout to recruit or bring into this City from outside this City any person or persons for employment, or to secure or offer to secure for such person or persons any employment on a temporary or permanent basis, when the purpose of the recruiting, securing, or offering to secure employment, is to have such persons take the place in employment of employees in a business owned by a person, firm, or corporation involved in a labor dispute involving a work stoppage or in a labor strike or lockout. This act shall not apply to activities and services offered by or through the Division of Employment Security of the State. (1960 C., § 804.010; 1994 C., § 15.56.010; Ord. No. 53561, § 1, 1965.)

15.56.020 Penalty for violation.

Any person, firm, or corporation violating the provisions of this chapter shall be guilty of a misdemeanor, and upon the conviction thereof, shall be fined not less than two hundred and fifty dollars, nor more than five hundred dollars. (1960 C., § 804.020; 1994 C., § 15.56.020; Ord. No. 53561, § 2, 1965.)

Chapter 15.58

RESERVED

Editor's Note:

Ord. No. 71934, § 2, approved November 26, 2024, amended the Code by repealing former Ch. 15.58, §§ 15.58.010 and 15.58.020, which pertained to vagrancy, and derived from the 1948 Code, Ch. 46, § 81; the 1960 Code, §§ 764.010 and 764.020; the 1994 Code, §§ 15.58.010 and 15.58.020; Ord. No. 57249, § 1, approved in 1976; and Ord. No. 57835, § 1, approved in 1979.

Chapter 15.59

MERCHANDISE FROM MOTOR VEHICLES

Sections:

15.59.010 Unlawful to sell or purchase.

15.59.020 Penalty for violation.

15.59.010 Unlawful to sell or purchase.

It shall be unlawful to sell or offer to sell or offer to purchase or purchase any goods, wares, merchandise or food from a car, truck or other type of motor vehicle on any public street, alley or sidewalk that is located within five hundred (500) feet of a residential area between the hours of 11:00 p.m. and 7:00 a.m. the following day. (1994 C., § 15.59.010; Ord. No. 63503, § 1, 1995.)

15.59.020 Penalty for violation.

Any person, firm or corporation convicted of violating this chapter shall be punished by a fine of no more than five hundred dollars ($500.00). (1994 C., § 15.59.020; Ord. No. 63503, § 2, 1995.)

DIVISION V. OFFENSES AGAINST PROPERTY

Chapter 15.60

STEALING

Editor's Note:

Section 3 of Ordinance 59204 provided that all prior ordinances making stealing unlawful are repealed, and Ordinance 11668, as amended by Ordinance 11971 and Ordinance 12423, and all later City codifications of such laws or adoptions of stealing prohibitions in subsequent City codes of ordinances prior to the enactment hereof, are also repealed.

For provisions concerning theft of bricks see Chapter 8.28A.

Sections:

15.60.010 Prohibited.
15.60.020 State law provisions.
15.60.030 Penalty for violation.

15.60.010 Prohibited.

It is unlawful and an offense against the City for any person to steal the property or services of another of the value of less than one hundred fifty dollars. (1994 C., § 15.60.010; Ord. No. 59204, § 1, 1984.)

15.60.020 State law provisions.

As far as is pertinent to the offenses created by Section 15.60.010 the State of Missouri statutory definitions and specifications applicable to RSMo 570.030, as amended, shall be applied in construing meanings and the specification of such Section 15.60.010 offense. (1994 C., § 15.60.020; Ord. No. 59204, § 2, 1984.)

15.60.030 Penalty for violation.

Any violation of the offense created by Section 15.60.010 shall upon conviction be punished as is provided for violations of City ordinances. (1994 C., § 15.60.030; Ord. No. 59204, § 4, 1984.)

Chapter 15.62

PETTY LARCENY

Sections:

15.62.010 Articles of value—Penalty for injury or stealing.

15.62.010 Articles of value—Penalty for injury or stealing.

Any person who shall cut, tear, rip, bore or open any bag, sack, bale, box, barrel or other package being the property of another, containing any article of value or who shall steal, take or carry away any article of value and of less value than thirty dollars, the property of another, or who shall secrete or hide away or knowingly purchase, barter or trade for any article of value and of less value than thirty dollars, knowing the same to have been stolen or acquired in a questionable or surreptitious manner within the limits of the City, shall be deemed guilty of a misdemeanor; provided, however, that nothing contained in this section shall be held to apply to a case where the facts given in evidence amount in law to a felony. The representative of the Commissioner having duties pertaining to the harbor and wharf and the marketmasters and their deputies are hereby authorized and empowered to arrest and hold for trial all persons offending against the provisions of this section. (1960 C., § 781; 1994 C., § 15.62.010.)

Chapter 15.64

BURGLAR TOOLS

RSMo:

RSMo 569.180 (2016) Possession of burglar's tools

Cases:

Ordinarily, when act is made criminal by statute (RSMo 560.115) existence of criminal intent is essential, even when not in terms required. *State v. Heflin,* 89 S.W. 2d 938, 338 Mo. 236, 103 A.L.R. 1301 (1935).

Statute (RSMo 560.115) prohibiting possession of burglar's tools is not unconstitutionally vague. *State v. Lovell,* 506 S.W. 2d 441 (1974).

Sections:

15.64.010 Prohibited.

15.64.010 Prohibited.

Any person who makes, mends, designs, or sets up, or who has in his custody or concealed about his person

any tool, false key, lock pick, bit, nippers, fuse, force screw, punch, drill, jimmy or any material implement, instrument or other mechanical device, whatsoever, adapted, designed or commonly used for breaking into any vault, safe, railroad car, boat, vessel, warehouse, store, shop, office, dwelling house or door, shutter or window of a building of any kind, shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 7; 1960 C., § 778.010; 1994 C., § 15.64.010.)

Chapter 15.66

DEALING IN STOLEN PROPERTY

Prior code history: 1948 C. Ch. 46 § 2

Sections:

15.66.010 Buying or receiving.

15.66.020 Proof of reasonable belief property not stolen.

15.66.030 Penalty for violation.

15.66.010 Buying or receiving.

No person shall buy or in any way receive any personal property or fixtures which have been unlawfully taken from another. (1960 C., § 782.010; 1994 C., § 15.66.010; Ord. No. 55786, § 1(part), 1971.)

15.66.020 Proof of reasonable belief property not stolen.

Upon proof that any personal property or fixtures have been unlawfully taken from the possession or control of another, and that within six months after the unlawful taking the personal property or fixtures have been in the possession or under the control of the defendant, then the defendant shall be guilty of violating Section 15.66.010, unless it shall be proved that:

A. Before buying or receiving the personal property or fixtures, the defendant made a diligent and good-faith inquiry as to the source of the personal property or fixtures sufficient to provide a reasonable belief that the personal property or fixtures had not been taken unlawfully; or

B. The defendant acquired the personal property or fixtures at a price and under circumstances sufficient to provide a reasonable belief that the personal property or fixtures had not been taken unlawfully; or

C. The defendant complied with RSMo 447.010 relating to the duty of persons finding lost property. (1960 C., § 782.020; 1994 C., § 15.66.020; Ord. No. 55786, § 1(part), 1971.)

15.66.030 Penalty for violation.

Any person convicted of a violation of Section 15.66.010 shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars, or by imprisonment for not less than one day nor more than six months, or by both fine and such imprisonment. (1960 C., § 782.030; 1994 C., § 15.66.030; Ord. No. 55786, § 1(part), 1971.)

Chapter 15.68

INJURY TO PLANTS AND FLOWERS

RSMo:

RSMo 569.100 (2016) Property damage in the first degree

RSMo 569.120 (2016) Property damage in the second degree

Sections:

15.68.010 Prohibited—Penalty.

15.68.010 Prohibited—Penalty.

No person shall cut, mutilate, dig, pull, tear, remove or injure any plant, flower, shrub, foliage plant, bulb or root growing within any parked area and between the property line and the center line of any public street, avenue or boulevard in the City. The owner of abutting property, his agents and servants, may plant, prune, trim or remove plants, shrubs, flowers, roots and bulbs so growing.

Any person violating any of the provisions of this section shall be guilty of a misdemeanor and, upon conviction, shall be punished by a fine of not less than ten dollars nor more than five hundred dollars, or imprisonment in the workhouse for not less than one month nor more than six months or by both fine and imprisonment. (1948 C., Ch. 46, § 25; 1960 C., § 244.010; 1994 C., § 15.68.010.)

Chapter 15.70

REMOVAL OF GROCERY CARTS

Sections:

15.70.010 Prohibited.

15.70.020 Marking carts.

15.70.010 Prohibited.

It is unlawful for any person, firm, or corporation to remove any supermarket cart for a distance of more than one hundred feet from the premises of the owner or operator of a retail grocery store or retail grocery supermarket within the City, or to place or abandon

any supermarket cart upon or in any street, alley, or sidewalk within the City after utilization of same. (1960 C., § 801.010; 1994 C., § 15.70.010; Ord. No. 50699, § 1, 1961.)

15.70.020 Marking carts.

All persons, firms, or corporations operating retail grocery stores or retail grocery supermarkets shall identify and mark each supermarket cart with the name and address of such market so the owner of the cart may be readily ascertained by an examination of the cart. (1960 C., § 801.020; 1994 C., § 15.70.020; Ord. No. 50699, § 1, 1961.)

Chapter 15.72

PROTECTION OF LIBRARY PROPERTY

Sections:

15.72.010 Taking books.
15.72.020 Mutilating and marking books.
15.72.030 Failure to return books.
15.72.040 Fines.

15.72.010 Taking books.

Every person who shall take from the public (free) library any book, pamphlet, periodical, paper or other property, except in accordance with the rules of the library, shall be guilty of a misdemeanor. (1948 C., Ch. 36, § 1; 1960 C., § 796.010; 1994 C., § 15.72.010.)

RSMo:

RSMo 182.460 (2016) City to provide penalties for injury upon library and property thereof

15.72.020 Mutilating and marking books.

Every person who shall willfully and wantonly cut, mutilate, mark, tear, write upon, deface or otherwise destroy or injure in whole or in part, any book, pamphlet, periodical, map, document, picture, or written or engraved or printed paper, belonging to the public (free) library, or shall suffer any such injury to be inflicted while the property is in his custody, or shall willfully or wantonly injure any of the furniture or property in the building of the library, shall be guilty of a misdemeanor. (1948 C., Ch. 36, § 2; 1960 C., § 796.020; 1994 C., § 15.72.020.)

15.72.030 Failure to return books.

Every person who shall take or borrow from the public (free) library any book, pamphlet, periodical, paper or other property, and neglect to return the same within two weeks from the date of mailing a notice to his address, shall be guilty of a misdemeanor. (1948 C., Ch. 36, § 3; 1960 C., § 796.030; 1994 C., § 15.72.030.)

15.72.040 Fines.

Fines collected for violation of this chapter or of other ordinances relating to the free public library shall be paid in to the free library fund for the use of the library. It shall be the duty of the law department promptly to prosecute all violations of this chapter or of other such ordinances. (1948 C., Ch. 36, § 4; 1960 C., § 796.040; 1994 C., § 15.72.040.)

Chapter 15.74

TRESPASSING

Sections:

Part I. Schools

15.74.010 Definitions.
15.74.020 Disturbing the peace.
15.74.030 Language and conduct.
15.74.040 Trespasser to leave.
15.74.050 Permission required to be on grounds.
15.74.060 Bothering students.
15.74.070 Being on grounds after dark.
15.74.080 Unauthorized person on grounds.
15.74.090 Penalty for violation of Sections 15.74.010—15.74.080.
15.74.100 Parking on grounds.
15.74.110 Penalty for violation of Section 15.74.100.

Part II. Generally

15.74.120 Prohibited.

Part III. City Jail

15.74.130 Prohibited.
15.74.140 Authorized persons.
15.74.150 Penalty for violation.

PART I. SCHOOLS

15.74.010 Definitions.

The following terms and phrases shall have the following meanings when used in this part:

A. "Invitation" means the consenting to or tendering of an offer to a person to go on school premises and

include a tender of such offer to the general public during the time of an athletic, cultural or social event conducted at the school which is designated as open to the public. Any person or group of persons specially notified that the described public offer does not apply to him are not deemed invited;

B. "Premises" means the school buildings and lands upon which the school buildings are situated and the grounds surrounding the school buildings which are designated as school property by a sign, fence or other similar type improvement;

C. "Unauthorized person" means any person who is not a student, teacher, employee, other school personnel, or persons conducting school business, making a delivery to the school or is not a person who is invited as that term is defined in this section. (1960 C., § 809.010; 1994 C., § 15.74.010; Ord. No. 55065, § 1, 1968.)

15.74.020 Disturbing the peace.

No person shall willfully or maliciously make or assist in making any noise, disturbance, or other improper diversion by which the peace, quietude or good order of any public, private or parochial school is disturbed. (1960 C., § 809.020; 1994 C., § 15.74.020; Ord. No. 56728, § 1(a), 1974; Ord. No. 55065, § 2, 1968.)

McQuillin:

24.95 Offenses against property; trespass and encroachments

15.74.030 Language and conduct.

No person shall use profane, indecent or immoral language or indulge in indecent or immoral conduct in any building or on any property adjacent to any building in the City occupied as a public, private, or parochial school. (1960 C., § 809.020; 1994 C., § 15.74.030; Ord. No. 56728, § 1(b), 1974; Ord. No. 55065, § 2, 1968.)

15.74.040 Trespasser to leave.

Any person found to be creating a disturbance in any private, public or parochial school or on the surrounding school grounds or on the fields or grounds lawfully used for school activities while such recreational areas or other activities are in progress shall leave immediately when so directed by the principal or by any other person designated by the principal. (1960 C., § 809.020; 1994 C., § 15.74.040; Ord. No. 56728, § 1(c), 1974; Ord. No. 55065, § 2, 1968.)

15.74.050 Permission required to be on grounds.

No person shall enter or remain in any public, private or parochial school building between the hours of eight a.m. and four thirty p.m. on days such school is in session who is not a regularly enrolled student, teacher or other employee at such school, unless he shall have first and immediately proceeded to the administration offices and identified himself to the principal or the principal's designee and received permission so to enter or remain.

It is unlawful for any person to enter or remain in any public, private or parochial school, or on any public way within two hundred fifty feet of such premises, after being requested to leave by the principal or his designee. (1960 C., § 809.020; 1994 C., § 15.74.050; Ord. No. 56728, § 1(d), 1974; Ord. No. 55065, § 2, 1968.)

15.74.060 Bothering students.

It is unlawful for any person to borrow or attempt to borrow any money or thing of value from any student in any public, private or parochial school property in the City or during any time when any student is going to or returning from any regularly scheduled session of any school without first obtaining the written approval of the principal of the school or other person designated by the principal to issue written approval. (1960 C., § 809.020; 1994 C., § 15.74.060; Ord. No. 56728, § 1(e), 1974; Ord. No. 55065, § 2, 1968.)

15.74.070 Being on grounds after dark.

It is unlawful for any person to be on any school grounds after official sunset unless he is actively engaged in school-sponsored functions, supervised recreational activities or is participating in an athletic event or is a spectator at such event. (1960 C., § 809.020; 1994 C., § 15.74.070; Ord. No. 56728, § 1(f), 1974; Ord. No. 55065, § 2, 1968.)

RSMo:

RSMo 569.140 (2016) Trespass in the first degree

15.74.080 Unauthorized person on grounds.

No unauthorized person shall enter upon the premises of any elementary, intermediate or secondary school. (1960 C. 809.020; 1994 C., § 15.74.080; Ord. No. 56728, § 1(g), 1974; Ord. No. 55065, § 2, 1968.)

15.74.090 Penalty for violation of Sections 15.74.010—15.74.080.

Any person who shall violate Sections 15.74.010—15.74.080 upon conviction thereof shall be found guilty

of a Class I general offense. (1960 C., § 809.030; 1994 C., § 15.74.090; Ord. No. 57836, § 2, 1979; Ord. No. 56728, § 2, 1974; Ord. No. 55065, § 3, 1968.)

15.74.100 Parking on grounds.

No person shall drive an automobile or motorcycle into or upon the premises of a public or private school for the purpose of stopping or parking thereon, except under the following circumstances:

A. The driver has the express consent of the principal in charge of the school to so park; or

B. The driver comes into the premises for the purpose of conducting school business and only then if the premises provide a designated parking area for the use of visitors' vehicles while that business is being conducted. (1960 C., § 809.040; 1994 C., § 15.74.100; Ord. No. 55065, § 4, 1968.)

15.74.110 Penalty for violation of Section 15.74.100.

Any person, firm or corporation who shall violate the provisions of Section 15.74.100, upon conviction thereof, shall be fined not less than twenty-five dollars, nor more than one hundred dollars for each offense. (1960 C., § 809.050; 1994 C., § 15.74.110; Ord. No. 55065, § 5, 1968.)

PART II. GENERALLY

15.74.120 Prohibited.

No person, without lawful authority, or without the express or implied consent of the owner or his agent, shall enter any building or enter on any enclosed or improved real estate, lot or parcel of ground in the City; or, being upon the land of another, shall fail, or refuse to leave the same when requested so to do by the person lawfully in possession thereof, his agent or representative; or deposit on the premises of another, or remove therefrom, any material, substance, earth, dirt, ashes, refuse, turf or other article or thing whatsoever.

Provided further, all delivery personnel, including letter carriers, whether employed by a private firm or government agency or government-supported corporation, shall use sidewalks and accepted and approved walkways and shall refrain from traversing lawns or other private property not normally used as a walkway by the general public in order to effect delivery.

Any person violating the provisions of this section shall be guilty of a misdemeanor. Nothing in this section shall deprive any owner of land of his right of access to the land of an adjoining owner, as at present provided by statute and by the building code. (1948 C., Ch. 46, § 79; 1960 C., §§ 795.010, 795.020; 1994 C., § 15.74.120; Ord. No. 57335, § 1, 1977.)

RSMo:

RSMo 569.140 (2016) Trespass in the first degree

RSMo 569.150 (2016) Trespass in the second degree

Cases:

In order to justify an arrest for trespassing it is not necessary that the offender be proved or found to have criminal capacity, or to have been of age. *Bond v. Wabash Railroad Co.,* 363 S.W. 2d 1 (1962).

Trespass under statute, let alone under city ordinance, is not a lesser degree of the offense of burglary. *State v. Meeks,* 458 S.W. 2d 255 (1970).

Watchman for railroad had right to depend on validity of ordinance on trespassing when he made arrest for violation of the ordinance. *Manson v. Wabash Railroad Company,* 338 S.W. 2d 54 (1960).

Unlawful entry is in itself an offense and there is no need for a request to leave. *Barnard v. Wabash Railroad Company,* 208 F. 2d 489 (1953).

City ordinance prohibiting letter carriers from traversing the private property of postal service patrons did not conflict with federal postal regulations and was therefore not invalid under the supremacy clause. *United States v. City of St. Louis,* Branch 343, 597 F2d 121 (1979).

Defendants, charged with trespassing upon the grounds of an abortion clinic, could not raise the defense of necessity by arguing that their actions were necessary to save the lives of unborn fetuses scheduled to be aborted. *City of St. Louis v. Klocker,* 637 S.W. 2d 174 (Mo. App. 1982).

PART III. CITY JAIL

15.74.130 Prohibited.

It is unlawful for any unauthorized person to enter or be upon any of the areas surrounding the perimeter of the City Jail building and the land lying adjacent thereto in all directions, extending from the perimeter to fences establishing the outer boundaries of the prohibited areas. (1994 C., § 15.74.130; Ord. No. 56621, § 1, 1973.)

McQuillin:

24.95 Offenses against property; trespass and encroachments

15.74.140 Authorized persons.

Authorized persons shall be limited to employees with duties directly connected with the handling of inmates of the City Jail building and those in transit thereto or therefrom and other persons specially authorized by the warden of the City Jail building for specific presences within the prohibited areas. (1994 C., § 15.74.140; Ord. No. 56621, § 2, 1973.)

15.74.150 Penalty for violation.

Any person who violates the provisions of this part shall be guilty of a misdemeanor and, upon conviction, shall be fined the sum of not less than one dollar nor more than five hundred dollars or imprisonment of from one to thirty days or both. (1994 C., § 15.74.150; Ord. No. 56621, § 3, 1973.)

Chapter 15.76

UNLAWFUL REMOVAL OF TIRES AND TUBES

Sections:

15.76.010 Owner consent.

15.76.020 Possessing tires or tubes.

15.76.010 Owner consent.

No person shall remove, or attempt to remove a tire or tube from a motor vehicle not his own, without the authority or consent of the owner. (1948 C., Ch. 46, § 78(part); 1960 C., § 783.010; 1994 C., § 15.76.010.)

15.76.020 Possessing tires or tubes.

No person shall purchase or have in his possession a tire or tube, knowing the same to have been removed from a motor vehicle without the authority or consent of the owner. (1948 C., Ch. 46, § 78(part); 1960 C., § 783.020; 1994 C., § 15.76.020.)

Chapter 15.77

GRAFFITI

Sections:

15.77.010 Definitions.

15.77.020 Provisions to govern abatement proceedings.

15.77.030 Graffiti prohibited.

15.77.040 Abatement procedure—Private property.

15.77.050 Abatement—Billing for costs.

15.77.060 Right of entry.

15.77.070 Authorization to designate agent.

15.77.080 Enforcement.

15.77.090 Penalty for violation.

15.77.010 Definitions.

As used in this chapter:

"Forestry Commissioner" means the Forestry Commissioner of the City of St. Louis or his designated employee.

"Graffiti" means any unauthorized inscription, word, figure, picture, or design that is sprayed, marked, posted, pasted or otherwise affixed, drawn, or painted on any surface of public or private property. Graffiti shall not mean a sign lawfully erected and maintained as required by other ordinances. (1994 C., § 15.77.010; Ord. No. 66934, § 2, 2005.)

15.77.020 Provisions to govern abatement proceedings.

Any ordinance to the contrary notwithstanding, the ordinance codified in this chapter shall govern proceedings for the abatement of nuisance conditions as defined in this chapter. (1994 C., § 15.77.020; Ord. No. 66934, § 3, 2005.)

15.77.030 Graffiti prohibited.

A. It is unlawful for any person to place graffiti upon any public or private property within the City of St. Louis.

B. It is unlawful for any person to maintain graffiti that has been placed upon, or allow graffiti to remain upon, any surface within that person's control, possession or ownership when the graffiti is visible from a public street, public alley, other public right-of-way and other public property.

C. Graffiti prohibited under this chapter is hereby declared a public nuisance. (1994 C., § 15.77.030; Ord. No. 66934, § 4, 2005.)

15.77.040 Abatement procedure—Private property.

Graffiti nuisances shall be proceeded against as follows:

A. Upon finding a graffiti nuisance on private property, the Forestry Commissioner shall give notice to the property owner as provided in Subsection B of this section. If the condition has not been abated within the time provided in that subsection, the Forestry Commissioner is authorized to abate it.

B. Any notice provided for by this section shall specify the address of the property and the graffiti condition existing on the property. Such notice shall be served:

1. By causing such notice to be delivered to the owner or other person in control; or

2. By mailing such notice, first class postage prepaid, to the property owner or other person in control of the property, either at his place of business or residence address in the City or elsewhere. Such notice shall

be deemed served seventy-two (72) hours after the mailing of such notice if it is directed to a business or residence address in the City of St. Louis. If the owner or person in control of such property is a nonresident of the City and has no business address in the City, such notice shall be deemed served at the end of such period after the mailing thereof as in the ordinary course of delivery of mail would be required for delivery of such notice.

3. If no mailing address can be determined for the owner or person in control of such property, a copy of such notice shall be posted upon the lot or land in question; such posted notice shall be deemed served at the end of seventy-two (72) hours after the posting thereof.

4. In giving any notice under this chapter, any City official or employee shall proceed in a manner which is both consistent with this chapter and which is reasonably calculated to cause actual notice to reach the property owner or person in control of the property.

5. Such notice shall state that the graffiti must be removed, and that such removal must begin within two (2) days after such notice is served and be completed within five (5) days after such notice is served.

6. If the graffiti nuisance has not been abated within the time provided in this chapter, the Forestry Commissioner or such entity designated by the Forestry Commissioner is authorized to enter the property and abate the nuisance. (1994 C., § 15.77.040; Ord. No. 66934, § 5, 2005.)

15.77.050 Abatement—Billing for costs.

The Forestry Commissioner shall bill the owners of any property on which the City abates a nuisance under this chapter for the cost of such abatement. Any such bill for the abatement of a graffiti nuisance which is unpaid ninety (90) days after it is mailed may be referred to the City Counselor or to a collection agency for collection and shall bear interest at the highest rate allowed by law. Any such bill for the abatement of a graffiti nuisance which the Forestry Commissioner has been unable to collect shall be certified to the Comptroller who shall prepare a special tax bill for the amount of the cost certified and shall immediately send the special tax bill to the Collector of Revenue for collection as provided in Section 5.08.010 et seq., of the Revised Code of the City of St. Louis, and the certified cost shall be collected in the same manner and procedure for collecting real estate taxes. If the certified cost is not paid, the tax bill shall be considered delinquent, and the collection of the delinquent bill shall be governed by the laws governing delinquent and back taxes. The tax bill from the date of its issuance shall be deemed a personal debt against the owner and shall also be a lien on the property until paid. (1994 C., § 15.77.050; Ord. No. 66934, § 6, 2005.)

15.77.060 Right of entry.

Any person employed, or contracted with, for the abatement of a nuisance as provided for in this chapter and any agent or employee of such person shall have the right of entry for that purpose into and upon any premises. Any interference with such entry or entry by any police officer, any officer, agent or employee of the Forestry Division or by any representative of the Forestry Commissioner for the purpose of inspection or the discovery or abatement of any nuisance shall constitute a violation of this chapter. (1994 C., § 15.77.060; Ord. No. 66934, § 7, 2005.)

15.77.070 Authorization to designate agent.

The Forestry Commissioner is authorized to designate Operation Brightside or its successor as the agency responsible for the notifications to owners or other persons in control of private property and the removal of graffiti provided for in this chapter. (1994 C., § 15.77.070; Ord. No. 66934, § 8, 2005.)

15.77.080 Enforcement.

Enforcement of this chapter shall be the joint responsibility of the Forestry Commissioner and Police Department. (1994 C., § 15.77.080; Ord. No. 66934, § 9, 2005.)

15.77.090 Penalty for violation.

Any person who shall violate provisions of this chapter shall, upon conviction thereof, be subject to a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed ninety (90) days, or both, at the discretion of the Court. Each day a graffiti nuisance is unabated after notice has been served pursuant to this chapter, is a separate violation. (1994 C., § 15.77.090; Ord. No. 66934, § 10, 2005.)

Chapter 15.78

VANDALISM

Sections:

15.78.010 Defined.

15.78.020 Prohibited.
15.78.030 Evidence—Conviction.
15.78.040 Legal title to premises.
15.78.050 Additional measure.
15.78.060 Penalty for violation of Sections 15.78.010—15.78.050.
15.78.070 Property damage.
15.78.080 Police duties.
15.78.090 Damaging public lights.

15.78.010 Defined.

For purposes of this chapter the term "vandalism" means the unauthorized damaging of property, either real or personal, in whole or part, of a building or structure or an improvement on premises, belonging to another. (1994 C., § 15.78.010; Ord. No. 55902, § 2, 1971.)

15.78.020 Prohibited.

No person shall commit any act of vandalism on, upon, in or against any building, structure or parts or improvements belonging to such building structure or curtilage thereof. (1994 C., § 15.78.020; Ord. No. 55902, § 1, 1971.)

15.78.030 Evidence—Conviction.

Whenever on trial for violation of Section 15.78.020 the defendant is shown to have caused damage to a building, structure or the improvements or curtilage thereof, and it is further proved that the damage was in no way associated with or explained by then and there observable evidence of any attempted repair, rehabilitation or lawful demolition of the premises or part thereof or by any unintentional act of the defendant, it shall be sufficient evidence to authorize conviction, unless the defendant explains his act of damaging to the satisfaction of the jury or the court when tried without a jury. (1994 C., § 15.78.030; Ord. No. 55902, § 3, 1971.)

15.78.040 Legal title to premises.

It shall be sufficient for purposes of this chapter to prove that the property damaged belonged to or that the right of possession was in another person or persons other than the person accused of vandalism, to prove that the accused did not have legal title to the premises. (1994 C., § 15.78.040; Ord. No. 55902, § 4, 1971.)

15.78.050 Additional measure.

This chapter shall not amend, repeal, or in any way limit other prior acts directed against destruction of property, but shall be an additional measure to safeguard against the unlawful destruction of property. (1994 C., § 15.78.050; Ord. No. 55902, § 5, 1971.)

15.78.060 Penalty for violation of Sections 15.78.010—15.78.050.

Any person violating the provisions of Sections 15.78.010—15.78.050 shall be guilty of a misdemeanor and upon conviction shall be fined not more than five hundred dollars, or sentenced to imprisonment in the City Workhouse for a term of not more than ninety days, or punished by both fine and imprisonment. (1994 C., § 15.78.060; Ord. No. 55902, § 6, 1971.)

15.78.070 Property damage.

No person shall maliciously destroy, damage or injure any public or private property of any kind whatsoever which does not belong to the person. (1960 C., § 761.010; 1994 C., § 15.78.070.)

City Counselor Ops.: 9252

15.78.080 Police duties.

Any person who shall deface, injure or damage any building, fence or other enclosure, sign, ornamental or shade tree, tree box, lamppost, awning post, fire plug, hydrant, railing or other property in the City, belonging to the City, or any property holder thereof, either by cutting, hacking, breaking, daubing with paint or other substance, marking with chalk or the hitching of horses or other animals to a tree or tree box, or in any other way or manner defacing, tearing down or injuring such property, shall be guilty of a misdemeanor. It is the special duty of the police to enforce the provisions of this section; and with this view the Board of Police Commissioners are requested to deliver a copy of this section to every police officer in their department. (1948 C., Ch. 46, § 49; 1960 C., § 761.020; 1994 C., § 15.78.080.)

RSMo:

RSMo 569.100—569.120 (2016) Property damage

City Counselor Ops.: 9003

15.78.090 Damaging public lights.

Any person who shall willfully, maliciously or negligently injure, pull down or break any lamppost, bracket, lamp, light, call-box, pole, wire, tube or cable or shall reduce the gas supplied to any public lamp or light or shall extinguish any such light or lamp, or shall injure,

break, deface or daub any mantle, globe or shade, or shall screen or otherwise obscure any public light, lamp or street sign, shall be guilty of a misdemeanor. (1948 C., Ch. 55, § 76; 1960 C., § 761.030; 1994 C., § 15.78.090.)

Chapter 15.79

INTENTIONAL DEFACEMENT OF BUILDINGS

Sections:

15.79.010 Prohibited.
15.79.020 Definitions.
15.79.030 Parental responsibility.
15.79.040 Written warning sent to parent.
15.79.050 Penalty for violation.

15.79.010 Prohibited.

No person shall, without the consent of the owner, write or scribble on the walls or other parts of public or privately owned buildings or structures, or mark the same with pictures or deface the same in any manner, including, but not limited to, the application of paint, marker, or like substance. (1994 C., § 15.79.010; Ord. No. 63776, § 1, 1996.)

15.79.020 Definitions.

For purposes of this chapter the following definitions shall apply:

A. "Knowingly" shall be defined as knowledge which a parent or guardian should reasonably be expected to have concerning the activities of a juvenile in that person's legal custody.

B. "Parent" is any natural or adopted parent, any person having legal custody of a juvenile, or an adult who has assumed responsible custody and control of said juvenile. (1994 C., § 15.79.020; Ord. No. 63776, § 2, 1996.)

15.79.030 Parental responsibility.

It shall be unlawful for a parent to knowingly permit or allow a juvenile to write or scribble on the walls or other parts of public or private buildings, or mark the same with pictures or deface the same in any manner, including, but not limited to, the application of paint, marker, or like substance. Any parent who has received a written warning under the provisions of Section 15.79.040 of this chapter shall be deemed to have reasonable knowledge concerning the activities of a juvenile for purposes of this section. (1994 C., § 15.79.030; Ord. No. 63776, § 3, 1996.)

15.79.040 Written warning sent to parent.

On the first violation of Section 15.79.010 of this chapter by a person under the age of eighteen (18) years, said person's parent shall receive a written warning from the St. Louis Metropolitan Police Department advising said parent that any subsequent violation of Section 15.79.010 by said minor shall constitute a violation of Section 15.79.030 of this chapter by the parent. (1994 C., § 15.79.040; Ord. No. 63776, § 4, 1996.)

15.79.050 Penalty for violation.

Upon conviction of a violation of this chapter, punishment shall be imposed by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment; provided further, the sentencing court may suspend imposition of judgment or sentence upon parole for the successful performance of supervised community public service of not less than forty (40) hours. (1994 C., § 15.79.050; Ord. No. 63776, § 5, 1996.)

Chapter 15.80

DUMPING WASTE MATERIALS

Sections:

15.80.010 Dumping without written permission.
15.80.020 Penalty for violation.
15.80.030 Use of collected fines.

15.80.010 Dumping without written permission.

No person, natural or legal, shall deposit debris, trash, refuse or the like upon the real property of another or on public land or property, without lawful permission or authority. (1994 C., § 15.80.010; Ord. No. 62330, § 2, 1991; Ord. No. 58313, § 1, 1981.)

15.80.020 Penalty for violation.

A person convicted of violating Section 15.80.010 shall be punished as follows:

A. For the first conviction, by a minimum fine of one hundred dollars ($100.00), and a maximum fine of one thousand dollars ($1,000.00) and incarcerated in the City Jail for three (3) days;

B. For the second conviction, by a minimum fine of three hundred dollars ($300.00), and a maximum fine of one thousand dollars ($1,000.00) and incarcerated in the City Jail for five (5) days; and

C. For a third conviction and subsequent conviction, by a minimum fine as had been adjudged on the person's second conviction and incarceration for not more than thirty (30) days in the City Jail.

D. Upon conviction under any of the foregoing circumstances the Court may adjudge a requirement that the person perform or furnish public service to the City of not less than forty (40) hours in lieu of imposition of imprisonment.
(1994 C., § 15.80.020; Ord. No. 71574, § 4, 11-4-2022; Ord. No. 62330, § 3, 1991; Ord. No. 58313, § 2, 1981.)

15.80.030 Use of collected fines.

Of the fines levied upon convicted persons as aforesaid, one-half (½) of each fine imposed by the Court shall be paid by the Clerk of the Court to the City Treasurer to an account hereby established as the Lot Maintenance Fund of the Department of Forestry; and such accumulated fund is hereby appropriated to be employed by the Department of Forestry to restore private and public property to a condition of cleanliness, safety and sanitary condition. The Department shall cause private liens to be filed against private property for recovery of the public cost involved for such restoration work where the property owner has failed to exercise reasonable measures for keeping the property in satisfactory condition. The Department of Forestry may award a bonus in an amount not less than one hundred dollars ($100.00) but not more than two hundred dollars ($200.00) from said account, in each case to a citizen who provides information leading to the arrest and conviction of any person violating this chapter. (1994 C., § 15.80.030; Ord. No. 62330, § 4, 1991.)

Chapter 15.82

FIREWORKS

RSMo:

RSMo 320.106 et seq. (2016) Fireworks

Sections:

15.82.010 Definition.
15.82.020 Findings.
15.82.030 Fireworks prohibited.
15.82.040 Adults prohibited to allow minors to violate fireworks prohibition.
15.82.050 Public displays exception with City Fire Marshal permission.
15.82.060 Penalties.

15.82.010 Definition.

For purposes of this chapter the term "fireworks" shall mean and include any explosive composition, substance, combination of substances, device or article designed for the purpose of producing a visible or audible effect of a temporary exhibitional or entertainment nature by explosion, combustion, deflagration, detonation, report, shooting a projectile into the air, or producing an open flame and shall include, but not be limited to, firecrackers, torpedoes, sky rockets, Roman candles, missiles, pinwheels, trick noisemakers known as party poppers, sparklers, helicopters, reloadable tube devices, comets, mines and shells, blank cartridges, toy cannons in which explosives are used, and the type of balloons which require fire underneath to propel the same. The term "fireworks" shall not include snake or glow worm pellets; smoke devices; and toy gun paper or plastic caps which contain less than 16.25 milligrams (.25 of a grain) of explosive mixture, provided they are so constructed that the hand cannot come in contact with the cap when in place for the explosion. (1994 C., § 15.82.010; Ord. No. 65824, § 1, 2003.)

15.82.020 Findings.

The Board of Aldermen finds that fireworks are harmful to the public health and safety and are a nuisance as a result of serious personal injury, traffic and other accidents, property damage, noise, and disruption of the public order. (1994 C., § 15.82.020; Ord. No. 65824, § 2, 2003.)

15.82.030 Fireworks prohibited.

No person or entity shall possess, store, sell, expose, post for sale, transfer to another, use, explode, discharge, set off, or burn fireworks of any kind or description within the limits of the City of St. Louis. (1994 C., § 15.82.030; Ord. No. 65824, § 3, 2003.)

15.82.040 Adults prohibited to allow minors to violate fireworks prohibition.

No person or entity shall permit or allow a minor under the age of seventeen (17) years to possess, store, sell, post for sale, expose, transfer to another, use, explode, discharge, set off, or burn fireworks of any kind or description within the limits of the City of St. Louis. (1994 C., § 15.82.040; Ord. No. 65824, § 4, 2003.)

15.82.050 Public displays exception with City Fire Marshal permission.

The provisions of this chapter notwithstanding, public displays of fireworks may be conducted by enti-

ties or by persons over age seventeen (17) years old with the prior written approval of the St. Louis City Fire Marshal, in accordance with any rules and regulations issued by the City Fire Marshal and in accordance with any rules and regulations issued by the City Fire Chief

and in accordance with any rules and regulations issued by the City Fire Chief and in accordance with all other laws of the City of St. Louis and State of Missouri. (1994 C., § 15.82.050; Ord. No. 65824, § 5, 2003.)

15.82.060 Penalties.

Any person or entity which violates the provisions of Section 5.82.030 shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each violation or by imprisonment for not less than five (5) days nor more than ninety (90) days in jail for each violation or both such fine and imprisonment. If a person or entity is convicted of a second or subsequent violation of the provisions of Section 5.82.030 within a twelve (12) month period, such person or entity shall be punished by a fine of not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00) for each violation or by imprisonment for not less than ten (10) days nor more than ninety (90) days in jail for each violation or both such fine and imprisonment. Any person or entity which violates the provisions of Section 5.82.040 shall be guilty of a misdemeanor and upon conviction thereof shall be fined an amount of not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00) for each violation or by imprisonment for not less than ten (10) days nor more than ninety (90) days in jail for each violation or both such fine and imprisonment. If a person or entity is convicted of a second or subsequent violation of the provisions of Section 5.82.040 within a twelve (12) month period, such person or entity shall be punished by a fine of five hundred dollars ($500.00) for each violation or by imprisonment for not less than twenty (20) days nor more than ninety (90) days in jail for each violation or both such fine and imprisonment. (1994 C., § 15.82.060; Ord. No. 65824, § 6, 2003.)

Chapter 15.83

OFFENSES AGAINST THE MOTOR VEHICLES OF OTHERS

Sections:

15.83.010 Vandalizing or forcing entry into vehicle.

15.83.020 Removal of items from vehicle.

15.83.030 Notice to victim.

15.83.040 Jurisdiction.

15.83.050 Penalty for violation.

15.83.060 Tampering.

15.83.010 Vandalizing or forcing entry into vehicle.

No person shall vandalize, deface, attempt to forcibly enter, forcibly enter, enter or damage the motor vehicle of another without permission of the owner. (1994 C., § 15.83.010; Ord. No. 68598, § 1, 3-16-2010.)

15.83.020 Removal of items from vehicle.

No person shall steal, remove or take any item from the motor vehicle of another without permission of the owner. (1994 C., § 15.83.020; Ord. No. 68598, § 2, 3-16-2010.)

15.83.030 Notice to victim.

For offenses under this chapter, the City Counselor shall inform the victim of the pending charges and provide that victim an opportunity to be heard in the Municipal Courts for the City of St. Louis on that matter. (1994 C., § 15.83.030; Ord. No. 68598, § 3, 3-16-2010.)

15.83.040 Jurisdiction.

The City Court shall not have jurisdiction under this chapter where the charged person has any prior felony convictions (including any form of probation sentence) or any prior convictions for any stealing or property damage related offenses, or has been charged previously under this chapter unless charges against such persons have been first referred by the St. Louis Metropolitan Police Department directly to the Circuit Attorney and the Circuit Attorney has refused prosecution on the charges. (1994 C., § 15.83.040; Ord. No. 68598, § 4, 3-16-2010.)

15.83.050 Penalty for violation.

Any person guilty of a violation of Section 15.83.010 or 15.83.020 shall be sentenced for up to ninety (90) days in jail and up to a $500.00 fine. (1994 C., § 15.83.050; Ord. No. 68598, § 5, 3-16-2010.)

15.83.060 Tampering.

A. A person commits the offense of tampering if they tamper with the automobile of another for the purpose of attempting to steal an automobile or its contents. The act of tampering includes lifting door handles or otherwise trying the doors or locks of successive vehicles that are not owned by the individual with the intent of gaining entry to steal the vehicle or its

contents. For purposes of this ordinance "successive" shall mean trying the doors or locks of one vehicle after another.

B. Guilt for the offense of tampering may be based upon an attempt to commit an offense if, with the purpose of committing the offense, a person performs any act which is a substantial step towards the commission of the offense. A "substantial step" is conduct which is strongly corroborative of the firmness of the actor's purpose to complete the commission of the offense and shall include lifting door handles or otherwise trying the doors and locks of successive vehicles that are not owned by the individual.

C. Any individual found to be in violation of the provisions of this ordinance shall be offered immediate referral and direction to an appropriate community outreach service program, and may be subject to probation for ninety (90) days and shall be offered alternatives to probation that include case management services or community service and, for a second, subsequent violation within ninety (90) days of the first violation shall be subject to a fine of not more than five hundred dollars ($500) or a term of imprisonment of not more than thirty (30) days or both a fine and imprisonment. (Ord. No. 71395, §§ 1—3, effective 10-21-2021.)

DIVISION VI. CONSUMER PROTECTION

Chapter 15.84

ADVERTISING

For littering, see Ch. 11.18.

RSMo:

RSMo 493.100—493.120 (2016) Advertisements generally.

McQuillin:

24.389 et seq. Regulation of advertising

Sections:

15.84.010 **Untrue, deceptive or misleading.**

15.84.020 **Affixing advertisements on any structures.**

15.84.030 **Statement of facts.**

15.84.040 **False want ads.**

15.84.070 **Dispensing information for medicines for sexual problems.**

15.84.010 Untrue, deceptive or misleading.

Any person who, with intent to sell or in anywise to dispose of merchandise, securities, service or anything offered directly or indirectly by such person to the public for sale or distribution, or with intent to increase the consumption thereof, or induce the public in any manner to enter into any obligations relating thereto, or to acquire title thereto, or any interest therein, makes, publishes, disseminates, circulates or places before the public or causes directly or indirectly to be made, published, disseminated, circulated or placed before the public, in this City, in any newspaper or other publication sold or offered for sale upon any public street, sidewalk or other public place, or offered, or delivered by carrier or other agency, to any person, or any subscribers, within this City, or on any sign in any manner posted, exposed or displayed upon any street, sidewalk or public ground, or in any handbill or advertisement in any manner displayed, or posted upon any street, sidewalk or public ground, or on any placard, advertisement or handbill in any manner delivered, displayed, exhibited or carried in any street, or public ground or upon any sidewalk, or any banner or sign flying across the street or from any building or structure of any kind, an advertisement of any sort, regarding merchandise, securities, service or anything therein offered for sale to the public, which advertisement contains assertion, representation or statement which is untrue, deceptive or misleading, as to quantity, quality, character, kind, cost or value of anything therein or thereby mentioned for sale shall be guilty of a misdemeanor. (1948 C., Ch. 3, § 1; 1960 C., §§ 735.010, 735.020; 1994 C., § 15.84.010.)

City Counselor Ops.: 8045, 9589

15.84.020 Affixing advertisements on any structures.

Any person who shall willfully or maliciously paint, post, place or affix any business, commercial, amusement or exhibition advertisement, or cause same to be done, on or to any curbstone, flagstone, or any other portion of any street, or sidewalk, or upon any tree, lamppost, hitching post, telegraph pole, telephone pole, hydrant, bridge or any public structure within the City, or to any wall, window, door, fence, gate, advertising structure, building or other object, which is the property of another, without first having secured the written consent of the owner thereof, or his duly authorized agent, shall be guilty of a misdemeanor. Nothing herein shall apply to any notice required by law or ordinance to be posted, or to any official notices by public officers. (1948 C., Ch. 3, § 3; 1960 C., §§ 737.010—737.030; 1994 C., § 15.84.020.)

City Counselor Ops.: 8088, 8310, 9003, 9626

15.84.030 Statement of facts.

It is unlawful for any person engaged in the business of selling goods, wares, merchandise, securities, service or real estate to advertise the sale of the same unless it shall be stated in the advertisement of the sale, clearly and unequivocally, that the person advertising the sale of goods, wares, merchandise, securities or real estate is a dealer in the same. The advertisement of the sale of any goods, wares, merchandise, securities, service or real estate in such form as to make it plainly apparent therefrom that the person so advertising is actually engaged in the business of selling such goods, wares, merchandise, securities, service or real estate as a business, shall be sufficient compliance with the terms of this section. Any person violating the provision of this section shall be guilty of a misdemeanor. (1948 C., Ch. 3, § 5; 1960 C., §§ 739.010, 739.020; 1994 C., § 15.84.030.)

Cases:

Ordinance requiring advertisement for sale of goods to state advertiser is dealer in goods, held within power of city. *City of St. Louis v. Southcombe,* 8 S.W. 2d 1001 (1928).

15.84.040 False want ads.

Any person who shall in the City knowingly insert or cause to be inserted in any newspaper in the City, any advertisement falsely representing that any person desires to hire or employ any labor or services of any kind or character or to purchase or acquire any kind or character of property, and any person who shall knowingly be in anywise concerned in the insertion of any such false advertisement in any newspaper printed or published in the City shall be guilty of a misdemeanor. (1948 C., Ch. 3, § 6; 1960 C., § 736.010; 1994 C., § 15.84.040.)

15.84.070 Dispensing information for medicines for sexual problems.

Any person who shall sell or offer to sell, give or offer to give away, distribute, or have in his possession with intent to give away, sell, or distribute in or upon any street or sidewalk or park or public property in the City, any book, pamphlet, circular, handbill, advertisement or notice of any kind giving or purporting to give information from whom or where medicine or anything whatever may be obtained for the cure, prevention or treatment of uterine diseases, or diseases peculiar to females, venereal diseases of the genital organs, or nervous debility, impotency, sterility, or barrenness, private diseases, abortion or miscarriage, or articles or means of preventing conception shall be guilty of a misdemeanor. (1948 C., Ch. 3, § 4(part); 1960 C., § 493.260(part); 1994 C., § 15.84.070.)

Chapter 15.86

RESERVED

Editor's Note:

Ord. No. 69808, § 1, adopted July 28, 2014, repealed Ch. 15.86, §§ 15.86.010—15.86.030, which pertained to fortunetellers and derived from 1948 C. Ch. 46 § 27(part) and 1960 C. §§ 780.010—780.030.

Chapter 15.88

MOTOR VEHICLE SALES

For adequate brake requirements, see § 8.82.100.

Sections:

15.88.010 Person defined.

15.88.020 Instruments evidencing debt.

15.88.030 Written statement and memorandum.

15.88.010 Person defined.

"Person" as used in this chapter means an individual, sole proprietorship, partnership or corporation, in the singular or plural or in combinations of each, engaged in the business of selling used motor vehicles. (1960 C., § 680.510; 1994 C., § 15.88.010; Ord. No. 51745, § 1, 1963.)

15.88.020 Instruments evidencing debt.

Every person selling a used motor vehicle shall complete all instruments evidencing a debt for all or a part of the purchase price for the vehicle, prior to offering the same to the purchaser for execution. (1960 C., § 680.520; 1994 C., § 15.88.020; Ord. No. 51745, § 2, 1963.)

15.88.030 Written statement and memorandum.

Every person selling a used motor vehicle shall supply to the purchaser, at the time of sale, a written statement disclosing all the particulars concerning the sale, including the sale price, a general description of the motor vehicle sold, and a statement as to the total amount of the sale price to be evidenced by any debt instrument to be signed by the purchaser. If, prior to the time of sale, the parties have agreed on a sale price for the motor vehicle, a written memorandum of the agreed sale price signed by the seller shall be furnished to the purchaser. The written statements required by

this section shall be supplied without request therefor by the purchaser. (1960 C., § 680.530; 1994 C., § 15.88.030; Ord. No. 51745, § 3, 1963.)

Chapter 15.90

REAL ESTATE ADVERTISING

For further regulation of real estate advertising, see §§ 15.18.155—15.18.240.

Cases:

Ordinance requiring that use zoning district be indicated on all "for sale" signs placed on real estate by real estate agents was within the city's power and did not violate any of defendant's constitutional rights. *City of St. Louis v. Green,* 353 S.W. 2d 606 (1962).

Sections:

15.90.010 Use zoning district on signs.

15.90.010 Use zoning district on signs.

No person, firm or corporation or agent, servant or employee thereof, shall erect, maintain or place or cause to be erected, maintained or placed, a sign or signs on a parcel of real estate, advertising or offering such parcel of real estate for sale or for lease for a period in excess of one year, without setting forth on such sign so erected, maintained or placed "The Use Zoning District" under the comprehensive zoning ordinance of this City in which such parcel of real estate is so situated or located in letters at least two inches in height. (1960 C., Ch. 740; 1994 C., § 15.90.010; Ord. No. 49394, § 1, 1959.)

Chapter 15.92

REAL ESTATE TITLE CERTIFICATE

Sections:

15.92.010 Statement as to zoning.

15.92.010 Statement as to zoning.

Every person who issues certificates of title to real estate within the City shall provide in the certificate to the effect that the certificate attempts to make no statement as to restrictions on property defined in the zoning ordinance. Any person violating this section shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 62; 1960 C., § 656.010; 1994 C., § 15.92.010.)

RSMo:

RSMo Ch. 442 (2016) Titles and conveyance of real estate

Chapter 15.94

SOLICITING PASSENGERS OR BAGGAGE

Sections:

15.94.010 Prohibited.

15.94.020 Posting chapter.

15.94.010 Prohibited.

It is unlawful for any person in or near any railway or other transportation station or upon any wharfboat or steamboat or near any wharfboat or steamboat or at the wharf or harbor of this City, to solicit or cry out for passengers or baggage for any hotel, railroad, steamboat or other place or for the carriage of the person or baggage in any wagon, hack, taxicab, omnibus, motor truck, or other vehicle, or by muscular power or to seize, snatch or grab the baggage or any parcel of any person for the purpose of carriage or attempted carriage thereof. Any person so offending shall be guilty of a misdemeanor. (1948 C., Ch. 3, § 7; 1960 C., § 797.010; 1994 C., § 15.94.010.)

15.94.020 Posting chapter.

All railroad companies having passenger depots in the City and all wharfboat companies having wharfboats at wharf and harbor of the City, and all captains of regular steamboat packets plying regularly between the port of St. Louis and elsewhere, and all other transportation companies, shall have printed copies of this chapter, posted in at least three conspicuous places in every depot, wharfboat or steamboat. A failure on the part of the superintendent, agent or captain thereof to do so shall be a misdemeanor. (1948 C., Ch. 3, § 8; 1960 C., § 797.020; 1994 C., § 15.94.020.)

Chapter 15.96

SOLICITATION OF CUSTOMERS FROM COMPETITIVE STORES

Sections:

15.96.010 Limitations.

15.96.010 Limitations.

Any person who shall accost another person on a street or sidewalk in front of any store, house or place of business, or within fifty feet of such store, house or place of business, in the City, and solicit the other person to purchase any goods, wares or merchandise of a like nature as those kept for sale within the store, house or place of business at another store, house or

place of business, or shall solicit the other person to enter the other store, house, or place of business for the purpose of examining or purchasing similar goods, wares or merchandise, shall be guilty of a misdemeanor. Nothing herein shall prohibit licensed peddlers acting within the scope of their license, nor members of bona fide organizations doing lawful picket duty, nor prohibit anyone, whether as principal or agent, from soliciting trade upon the street or sidewalk in front of his own place of business. (1948 C., Ch. 61, § 9; 1960 C., §§ 798.010, 798.020; 1994 C., § 15.96.010.)

City Counselor Ops.: 7830

Cases:

City ordinance prohibiting solicitation of prospective purchaser while such purchaser is on street or sidewalk in front of the place of business of a competitor held void as special legislation. *Ex parte Lerner,* 281 Mo. 18, 218 S.W. 332 (1920).

Chapter 15.98

UNLAWFUL SALE OF ADS AND LISTINGS

Sections:

15.98.010 Enumerated.
15.98.020 Penalty for violation.

15.98.010 Enumerated.

It is unlawful for any person, firm, corporation, or association to sell, offer to sell, or attempt to sell in any manner, any listing or advertisement in any book, program, circular, pamphlet or publication of any kind whatsoever on the plea or representation that the purchase of the listing or advertisement is for, sought by, or will enure to the benefit of any municipality, state or federal office or agency, or any officer or employees thereof, or any philanthropic, benevolent, fraternal, charitable, or religious society, association, or corporation, without first having obtained the lawful written consent of the municipality, state, or federal office or agency, or any officer or employees thereof, or any philanthropic, benevolent, fraternal, charitable, or religious society, association or corporation. (1960 C., § 738.010; 1994 C., § 15.98.010; Ord. No. 48453, § 1, 1957.)

15.98.020 Penalty for violation.

Any person, firm, corporation, or association who violates the provisions of this chapter shall be guilty of a misdemeanor and upon conviction thereof shall be fined the sum of not less than one dollar, nor more than five hundred dollars. (1994 C., § 15.98.020; Ord. No. 48453, § 2, 1957.)

Chapter 15.100

RESERVED

Editor's Note:

Ord. No. 71934, § 3, approved November 26, 2024, amended the Code by repealing former Ch. 15.100, §§ 15.100.010—15.100.070, which pertained to foreclosure mediation, and derived from the 1994 Code, §§ 15.100.010—15.100.070; and Ord. No. 69428, §§ 1—7, approved February 27, 2013.

DIVISION VII. OFFENSES BY OR AGAINST MINORS

Chapter 15.106

ABANDONED ICE BOXES

For weapons and minors, see Ch. 15.134.

For obscene materials, see §§ 15.32.050—15.32.110.

Sections:

15.106.010 Prohibited.
15.106.020 Penalty for violation.

15.106.010 Prohibited.

Any person, firm or corporation, who abandons, discards, stores or keeps in any place accessible to children, or who, as the owner, lessee, or manager, permits to remain on premises under his control, a refrigerator, icebox or freezer cabinet or similar container, of a capacity of one and one-half cubic feet or more, which is no longer used for refrigeration purposes, without attached doors, hinges, lids or latches being removed, is guilty of a misdemeanor. (1960 C., § 793.010; 1994 C., § 15.106.010; Ord. No. 46895, § 1, 1954.)

15.106.020 Penalty for violation.

Any person, firm or corporation violating the provisions of this chapter shall be guilty of a misdemeanor and, upon conviction, shall be fined the sum of not less than fifty dollars nor more than five hundred dollars, or by imprisonment for not more than thirty days or by both fine and imprisonment. (1994 C., § 15.106.020; Ord. No. 46895, § 2, 1954.)

Chapter 15.108

CONTRIBUTING TO THE DELINQUENCY OF A CHILD

Prior code history: 1948 C. Ch. 46 § 10

City Counselor Ops.: 10314

RSMo:

RSMo 568.050 (2016) Endangering the welfare of a child

Sections:

15.108.010 Responsibility of parents.

15.108.020 Penalty for violation.

15.108.030 Evidence of reputation.

15.108.010 Responsibility of parents.

It is unlawful for any person, including a parent, legal guardian or other person in a relation of loco parentis or responsible for care and support, to encourage, aid or cause any child under seventeen years of age to commit any act or engage in any conduct which would be injurious to such child's morals or health, or for any such person to commit any act or omit the performance of any duty which contributes to or causes or tends to cause such a child to engage in behavior or

be subjected to an environment or associations which have been or are injurious to the child's or others welfare or which has resulted in the commission by the child of violation of federal, state or municipal laws. (1960 C., § 756.020(1); 1994 C., § 15.108.010; Ord. No. 56591, § 2(part), 1973.)

15.108.020 Penalty for violation.

Any person violating the provisions of Section 15.108.010 shall, upon conviction, be punished by a fine of not more than five hundred dollars, or by imprisonment of not more than ninety days, or by both fine and imprisonment. (1960 C., § 756.020(2); 1994 C., § 15.108.020; Ord. No. 56591, § 2(part), 1973.)

15.108.030 Evidence of reputation.

Courts, upon trial of any person charged with violation of Section 15.108.010, may receive, where material to the charge, evidence of the reputation of persons, place things in proof or disproof of the charge. (1960 C., § 756.020(3); 1994 C., § 15.108.030; Ord. No. 56591, § 2(part), 1973.)

Chapter 15.110

CURFEW

Prior ordinance history: Ords. 47038, 53693, 58264 and 58540

McQuillan:

19.30 Liberties of the person—movement

24.111 Violation of curfew

City Counselor Ops.: 8050

Sections:

15.110.010 Definitions.
15.110.020 Curfew for juveniles.
15.110.030 Exemptions to curfew restrictions.
15.110.040 Parental responsibility.
15.110.050 Enforcement procedure.
15.110.060 Violation by parent.
15.110.070 Penalty for violation.
15.110.080 Parents required to pick up juvenile.
15.110.090 Sale of consumer products to juveniles.

15.110.010 Definitions.

The following words shall have the following definitions as used in this chapter:

A. "Juvenile" or "minor" is any person under the age of (17) seventeen.

B. "Parent" is any natural or adopted parent, any person having legal custody of a juvenile, or an adult that has assumed responsible custody and control of said juvenile.

C. "Remain" means to stay behind, to tarry and to stay unnecessarily upon the streets, alleys, rights-of-way or similar places.

D. "Knowingly" shall be defined as knowledge which a parent should reasonably be expected to have concerning the whereabouts of a juvenile. (1994 C., § 15.110.010; Ord. No. 63784, § 2, 1996.)

15.110.020 Curfew for juveniles.

It shall be unlawful for any juvenile to be or remain in or upon the streets, alleys, rights-of-way or similar places within the City of St. Louis at night during the period ending at 5:00 a.m. and beginning at 11:59 p.m. on Friday and Saturday night and at 11:00 p.m. on all other nights, except as provided in this chapter. (1994 C., § 15.110.020; Ord. No. 63784, § 3, 1996.)

15.110.030 Exemptions to curfew restrictions.

Exemptions to curfew restrictions are as follows:

A. When accompanied by parent of such juvenile; when accompanied by a person over the age of twenty-one authorized by a parent.

B. When the juvenile is on the sidewalk of a place where such juvenile resides, or on the sidewalk of either next door neighbor not communicating an objection to the police.

C. When returning home, by a direct route from (and within one hour after the termination of) a school or City-sponsored activity, or an activity of a religious or other association, or place of employment. (1994 C., § 15.110.030; Ord. No. 63784, § 4, 1996.)

15.110.040 Parental responsibility.

It shall be unlawful for a parent after receiving a written warning notice pursuant to Section 15.110.050 of this chapter to knowingly permit a juvenile to remain upon any City street, alley, right-of-way, or similar place under circumstances not constituting an exception to, or otherwise beyond the scope of, this chapter. (1994 C., § 15.110.040; Ord. No. 63784, § 5, 1996.)

15.110.050 Enforcement procedure.

If a police officer reasonably believes that a juvenile is on the streets in violation of the curfew ordinance, the officer shall notify the juvenile that he or she is in violation of the ordinance and shall require the

juvenile to provide his or her name, address and telephone number and how to contact his or her parent. In determining the age of the juvenile and in the absence of convincing evidence such as a birth certificate or driver's license, or permit, a police officer on the street shall use his/her best judgment in determining age. If the police determine that a person is in violation of this chapter he shall take the juvenile to the police station or other appropriate holding facility where a parent shall immediately be notified to come for the juvenile whereupon they shall be questioned, and a written warning notice shall be issued to both the juvenile and the parent or parents, and the Division of Family Services. However, this does not preclude a police officer, using his discretion, from transporting said juvenile to his home. (1994 C., § 15.110.050; Ord. No. 63784, § 6, 1996.)

15.110.060 Violation by parent.

The parent(s) of the juvenile shall have violated this chapter if, within twelve (12) months after receipt of a written warning notice pursuant to Section 15.110.050, a second curfew violation against the same juvenile is issued. (1994 C., § 15.110.060; Ord. No. 63784, § 7, 1996.)

15.110.070 Penalty for violation.

Upon conviction for a violation of this chapter, punishment shall be imposed by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment; provided further, the sentencing court may suspend imposition of judgment or sentence upon parole for the successful performance of supervised community public service of not less than twenty (20) hours. (1994 C., § 15.110.070; Ord. No. 63784, § 8, 1996.)

15.110.080 Parents required to pick up juvenile.

A. No parent(s) of a person under the age of seventeen (17), who is being held by the Police Department for violating curfew, shall fail or refuse to pick up said juvenile within a reasonable time upon being notified by the Police Department of said curfew violation. For purposes of this section the term reasonable time shall be at least forty-five (45) minutes.

B. For purposes of this section, "parent" is any natural or adopted parent, any person having legal custody of a juvenile.

C. Penalty. Upon conviction of any violation of this section punishment shall be imposed by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment; provided further, the sentencing court may suspend imposition of judgment or sentence upon parole for the successful performance of supervised community public service of not less than forty (40) hours. (1994 C., § 15.110.080; Ord. No. 63785, §§ 1—3, 1996.)

15.110.090 Sale of consumer products to juveniles.

A. For purposes of this section the following definitions shall apply:

1. The term "adult" shall mean any person eighteen years of age or older.

2. The term "consumer product" shall mean any product which is used or bought for use primarily for personal, family, or household purposes.

B. It shall be unlawful for any merchant within the City of St. Louis to give, barter, sell, cause to be sold, or furnish any consumer product, to any person under seventeen (17) years of age between the hours of 11:00 p.m. and 5:00 a.m. Sunday through Thursday, and 11:59 p.m. and 5:00 a.m. Friday and Saturday, unless said person is accompanied by a parent, any person having legal custody of the juvenile, or an adult in the extended family of the juvenile that has assumed responsible custody and control of the juvenile.

C. Penalty.

1. Every person who shall be convicted of any violation of the provisions of this section shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00).

2. For any subsequent conviction of this section, the judge shall require a fine of no less than five hundred dollars ($500.00). (1994 C., § 15.110.090; Ord. No. 63799, §§ 2—4, 1996.)

Chapter 15.111

ENTERTAINMENT AREA CURFEW

Sections:

15.111.010 Entertainment area—Defined.
15.111.020 Prohibition on people under 21 years.
15.111.030 Penalty for violation.

15.111.010 Entertainment area—Defined.

The following-described area (the "Entertainment Area"), because of its concentration of establishments primarily engaged in the evening hours in serving alcohol, shall be subject to the prohibitions of this chapter:

A portion of the City bounded on the east by the west line of Lenore K. Sullivan Blvd., on the north by the north line of Biddle Street, on the south by the south line of Eads bridge, and on the west by the west line of Third Street. (1994 C., § 15.111.010; Ord. No. 62393, § 1, 1991.)

15.111.020 Prohibition on people under 21 years.

No person under 21 years of age shall be in or on the public streets, alleys, sidewalks, wharfs, bridges, parks or other public places within the Entertainment Area between the hours of 12:00 midnight and 6:00 a.m. the following day, except that the provisions of this section shall not apply to any person accompanied by a parent, guardian or other adult having his care or custody, to any person on an emergency errand or legitimate business directed by his parent, guardian or other adult having his care or custody; to any guest of a hotel/motel in the Entertainment Area travelling to or from such hotel; to any person travelling to or from his place of employment within the Entertainment Area or whose presence in the Entertainment Area is connected with and required by his employment. (1994 C., § 15.111.020; Ord. No. 62393, § 2, 1991.)

15.111.030 Penalty for violation.

Any person violating the provisions of this chapter shall, upon being found guilty thereof, be punished by a fine of not less than $1.00 nor more than $500.00. (1994 C., § 15.111.030; Ord. No. 62393, § 3, 1991.)

Chapter 15.112

DISRUPTION OF SCHOOL OR TRAVEL

Sections:

15.112.010 Detaining minor.
15.112.020 Disrupting schools.
15.112.030 Encouraging absenteeism.
15.112.040 Penalty for violation.

15.112.010 Detaining minor.

Any person who shall maliciously, forcibly or fraudulently lead, coax, take or carry away, or decoy, lure or entice away any minor under the age of fourteen years with intent to detain or divert the minor from its parents or from its school or from pursuing its normal travel to or from its school or home, shall be guilty of a misdemeanor, and, upon conviction, shall be fined in a sum not to exceed five hundred dollars, or imprisonment in the workhouse for a period not exceeding six months, or by both fine and imprisonment. (1960 C., § 755.010; 1994 C., § 15.112.010; Ord. No. 44794, § 1, 1948.)

15.112.020 Disrupting schools.

It is unlawful for any person or group of persons to interfere with, or to disrupt or attempt to disrupt the normal operation of any public or private primary or secondary school, or to seek or to attempt to induce a boycott of class attendance by students at the school or in any other manner to discourage or prevent school attendance by the students. (1994 C., § 15.112.020; Ord. No. 55528, § 1, 1970.)

15.112.030 Encouraging absenteeism.

It is unlawful for any person or group of persons to interfere with, detain, divert, decoy, lure or entice away any student travelling to or from any public or private primary or secondary school or to threaten harm to any student for his attendance at the school or to encourage or suborn school absenteeism by any student. (1994 C., § 15.112.030; Ord. No. 55528, § 2, 1970.)

15.112.040 Penalty for violation.

Any person violating any provision of Sections 15.112.020—15.112.030 shall be guilty of a misdemeanor, and, upon conviction, shall be fined in a sum not to exceed five hundred dollars, or imprisonment in the workhouse for a period not exceeding six months, or by both fine and imprisonment. But no provision of Sections 15.112.020—15.112.030 shall prevent the right of the people peaceably to assemble, and to petition for a redress of grievances. (1994 C., § 15.112.040; Ord. No. 55528, § 3, 1970.)

Chapter 15.114

LIBERTIES WITH MINORS

Sections:

15.114.010 Prohibited.

15.114.010 Prohibited.

It is unlawful for anyone in the presence of any minor to indulge in any degrading, lewd, immoral or vicious habits or practices or to take indecent or improper liberties with any minor; or to publicly expose

his or her person to the minor in an obscene or indecent manner; or to refer to any immoral, lewd, lascivious or indecent act by language, sign or touching the minor; or to detain a minor child with intent to perpetrate any of the aforesaid acts. (1960 C., § 756.030; 1994 C., § 15.114.010; Ord. No. 46144, § 1, 1952.)

McQuillin:

24.112 Lewd conduct

Chapter 15.116

LIQUOR AND BEER OFFENSES INVOLVING MINORS

City Counselor Ops.: 9355

Sections:

15.116.010 Providing liquor or beer to minors.

15.116.015 Delivering intoxicating liquor or nonintoxicating beer to minor.

15.116.020 Selling.

15.116.030 Purchase or possession by minors.

15.116.040 Posted premises.

15.116.050 Misrepresentation of age.

15.116.060 Possession of false evidence of age.

15.116.070 Minors in entertainment.

15.116.010 Providing liquor or beer to minors.

No person, his agent, servant, or employee shall sell, give away, dispose of, or suffer or permit the same to be done, any intoxicating liquor, nonintoxicating beer or any beverage having an alcoholic content in excess of one-half of one percent alcohol by volume, to any minor under the age of twenty-one years. The provisions of this section shall not apply to the supplying of alcoholic liquids to a minor for medicinal purposes only, or to the administering of alcoholic liquids to a minor by a physician, or to the supplying of alcoholic liquids to a minor by the minor's parent or legal guardian. (1960 C., § 753.010; 1994 C., § 15.116.010; Ord. No. 51376, § 1(part), 1962; Ord. No. 48019, 1956.)

RSMo:

RSMo 311.300, 311.310 (2016) Sale of alcoholic beverages by and to minors

McQuillin:

24.180 Liquor regulations as to minors

15.116.015 Delivering intoxicating liquor or nonintoxicating beer to minor.

A. As used herein, the term "minor" means a person under the age of twenty-one. As used herein, the terms "intoxicating liquor" and "nonintoxicating beer" shall have the meaning ascribed to such terms by Sections 14.01.160 and 14.01.230, respectively, of the Revised Code of the City of St. Louis, as amended by Ordinance No. 61289.

B. No person shall sell, give, dispense, or otherwise deliver any intoxicating liquor or nonintoxicating beer to a minor. Except that it shall not be a violation for a parent or legal guardian to give, dispense, or otherwise deliver intoxicating liquor or nonintoxicating beer to his or her minor child or ward in a private home, provided that such intoxicating liquor or nonintoxicating beer is consumed solely by said child at such home. Nor shall it be a violation for a person to give, dispense, or otherwise deliver intoxicating liquor or nonintoxicating beer to a child as part of a ceremony or service conducted by a recognized religious group.

C. Penalty Clause. Any person convicted of violation of this section shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 15.116.015; Ord. No. 61983, §§ 1—3, 1990.)

15.116.020 Selling.

No minor under the age of twenty-one years shall sell or assist in the sale, deliver or assist in the delivery of intoxicating liquor or nonintoxicating beer or any beverage having an alcoholic content in excess of one-half of one percent alcohol by volume. (1960 C., § 753.020; 1994 C., § 15.116.020; Ord. No. 51376, § 1(part), 1962; Ord. No. 46104, § 1, 1952.)

RSMo:

RSMo 568.050 (2016) Endangering the welfare of a child in the second degree

City Counselor Ops.: 9917

15.116.030 Purchase or possession by minors.

Any minor under the age of 21 years who purchases or attempts to purchase, has in his possession or consumes any intoxicating liquor or nonintoxicating beer or any alcoholic beverage having an alcoholic content in excess of one-half of one percent alcohol by volume, shall be deemed guilty of a misdemeanor. (1960 C., § 753.030; 1994 C., § 15.116.030; Ord. No. 51376, § 1(part), 1962; Ord. No. 46104, § 1, 1952.)

RSMo:

RSMo 311.325 (2016) Purchase or possession by minor

15.116.040 Posted premises.

No minor, unless accompanied by his parent, or legal guardian, or responsible adult related to the minor by blood, marriage or adoption, shall enter, attempt to enter, or be present on premises licensed for the sale at retail of intoxicating liquor or nonintoxicating beer, where the premises are posted against the entry or presence of minors, according to the method of posting described in Chapter 14.12, unless the minor is legally employed on the licensed premises. (1960 C., § 753.040; 1994 C., § 15.116.040; Ord. No. 51376, § 1(part), 1962; Ord. No. 4604, § 1, 1952.)

15.116.050 Misrepresentation of age.

No minor under the age of twenty-one years shall misrepresent his age, or make any false statement about his age to anyone, for the purpose of purchasing or obtaining in any way intoxicating liquor, nonintoxicating beer or alcoholic beverage with an alcoholic content in excess of one-half of one percent alcohol by volume. (1960 C., § 753.050; 1994 C., § 15.116.050; Ord. No. 51376, § 1(part), 1962.)

RSMo:

RSMo 311.320 (2016) Misrepresentation of age by minor to obtain liquor

15.116.060 Possession of false evidence of age.

Any minor under the age of twenty-one who shall have in his possession any identification belonging to someone else, or any falsified or fraudulent identification, which represents that the person possessing the identification is of the age of twenty-one or over, and uses same to purchase or attempt to purchase any alcoholic beverage in excess of one-half of one percent alcohol by volume, shall be guilty of a misdemeanor. (1960 C., § 753.060; 1994 C., § 15.116.060; Ord. No. 51376, § 1(part), 1962.)

15.116.070 Minors in entertainment.

Any minor under the age of twenty-one years who shall be employed in entertainment, or work in entertainment or in connection with entertainment in any place licensed under the provisions of Chapters 14.20 or 14.28 for the retail sale or consumption of intoxicating liquor or nonintoxicating beer, without first obtaining the written consent of the Excise Commissioner as provided in Chapter 14.12, shall be guilty of a misdemeanor.

Any adult who arranged or contracted for the employment in entertainment of a minor shall also be guilty of a misdemeanor. (1960 C., § 753.070; 1994 C., § 15.116.070; Ord. No. 51376, § 1(part), 1962.)

Chapter 15.117

FAKE IDENTIFICATION

Sections:

15.117.010 Prohibited actions.
15.117.020 Violation—Penalty.

15.117.010 Prohibited actions.

No person shall, with purpose to defraud, manufacture, make, alter, possess, use, sell, give away, barter or trade any identification which misrepresents the age or identity of a person under twenty-one years of age who is the intended subject of the identification. (1994 C., § 15.117.010; Ord. No. 63985, § 1, 1997.)

15.117.020 Violation—Penalty.

Any violation of the provisions of this chapter shall, upon conviction, be punishable by a fine of not more than five hundred dollars ($500.00) for each offense, by imprisonment for not more than ninety (90) days or by both, and each day such violation exists shall be deemed a separate offense. (1994 C., § 15.117.020; Ord. No. 63985, § 2, 1997.)

Chapter 15.118

MINORS OPERATING PINBALL MACHINES

Sections:

15.118.010 Definitions.
15.118.020 Written consent.
15.118.030 Sign.

15.118.010 Definitions.

For the purpose of this chapter "pinball machine or similar device" includes, but is not to be limited to, amusement devices sometimes referred to as a pin game, pin table, marble table, marble game, marble board, mechanical baseball game, etc., into which a coin is inserted and the player manipulates a plunger or other apparatus and mechanically shoots a ball into a field of pins, plugs, dips, obstructions, bumpers, springs, holes or similar object. (1960 C., § 753.090; 1994 C., § 15.118.010; Ord. No. 55049, § 2, 1968.)

15.118.020 Written consent.

No person, firm or corporation, acting either as owner, lessee, agent, employee, or otherwise, of a tav-

ern, restaurant, store or any other place of public resort, shall permit or suffer any minor under the age of fourteen years to play a coin-operated pinball machine or similar device on the premises of the person, firm or corporation without first obtaining the written consent of any parent or guardian of the minor. The written consent shall be kept in the custody of the person, firm or corporation at the time the minor is playing or utilizing the coin-operated pinball machine or similar device and shall be displayed to any police officer upon request. In the event the minor is accompanied by its lawful parent or guardian who is at all times present while the minor plays the machine or device, consent may be orally given to the person acting as owner, lessee, agent, employee there in charge or control of the premises. (1960 C., § 753.080; 1994 C., § 15.118.020; Ord. No. 55049, § 1, 1968.)

McQuillin:

24.139 et seq. Pinball machines and other similar machines and games

15.118.030 Sign.

Any person, firm or corporation described in Section 15.118.020 shall conspicuously display a sign on each coin-operated pinball machine or similar device stating thereon: "Minors under fourteen years of age are not permitted to operate this device without the written consent of parent or guardian, or unless accompanied by a consenting parent or guardian." (1960 C., § 753.100; 1994 C., § 15.118.030; Ord. No. 55049, § 3, 1968.)

Chapter 15.120

PARENTAL DUTY

Sections:

15.120.010 Failure to report—Parental control.

15.120.020 Penalty for violation.

15.120.030 School attendance by child.

15.120.040 Penalty for violation—Section 15.120.030.

15.120.010 Failure to report—Parental control.

Every parent or legal guardian of a minor under the age of seventeen years shall, when the minor has been taken into custody by the Police Department, report within forty-eight hours after notification of this fact to the Juvenile Officer of the Police District in which the Juvenile Officer or his superior officer shall cause a written notice to be given to the parent or legal guardian by registered mail or by serving the notice upon the person. The notice so given shall apprise the parent or legal guardian of the fact their minor under seventeen years of age had been taken into custody by the Police Department and of their responsibility under provisions of this chapter to report to the Police District. The notice shall specify what Police District the parent or legal guardian is to appear and shall name the Juvenile Officer to whom to report. Any parent or legal guardian failing to report within forty-eight hours after receiving the notice shall have violated this Code. It shall further be the duty for each parent or legal guardian of a minor under the age of seventeen years to exercise reasonable parental control of the minor. It shall be deemed a violation of this Code for any parent or legal guardian of a minor under the age of seventeen years to fail to exercise reasonable parental control of the minor when the failure contributes to, causes or tends to cause the minor to come within the provisions of Subdivision (1) or (2) of RSMo 211.031. (1960 C., § 756.060; 1994 C., § 15.120.010; Ord. No. 55876, § 1, 1971.)

15.120.020 Penalty for violation.

Any parent or legal guardian of a minor child under the age of seventeen years who shall violate the provisions of this chapter shall be punished upon conviction by a fine of not less than one hundred dollars nor more than five hundred dollars. (1994 C., § 15.120.020; Ord. No. 55876, § 2, 1971.)

15.120.030 School attendance by child.

A. No parent, guardian or other person in this City having charge, control or custody of a child between the ages of seven and sixteen years of age shall, without excuse or exemption, knowingly permit said child to absent himself from attendance at a public, private, parochial, parish or home school on such dates, and during such hours, as the school may be regularly in session.

B. Such parent, guardian, or other person shall be deemed to have knowledge of a child's unexempted, unexcused absence from school after having received notification of same from a police officer or school representative. (1994 C., § 15.120.030; Ord. No. 62297, § 1, 1991.)

15.120.040 Penalty for violation—Section 15.120.030.

Any person convicted of a violation of Section 15.120.030 shall be fined in an amount of not less than

twenty-five dollars ($25.00). Each day that any violation hereunder continues shall constitute a separate offense subject to the penalty provided in this section. (1994 C., § 15.120.040; Ord. No. 62297, § 3, 1991.)

Chapter 15.121

HARBORING MINORS

Sections:

15.121.010 Runaways—Notification.

15.121.020 Minors under supervision of juvenile court—Notification.

15.121.030 Harboring minor who has violated the law.

15.121.040 Harboring minor more than forty-eight hours.

15.121.050 Violation—Penalty.

15.121.010 Runaways—Notification.

It shall be unlawful for any person, company, association or corporation to knowingly harbor, hide or give shelter to a minor child under seventeen years of age who has run away from his or her parents or lawful guardians, unless said person, company, association or corporation shall, within twenty-four hours of the minor child's arrival, notify either the police or the Division of Family Services of the minor's presence. (1994 C., § 15.121.010; Ord. No. 63668, § 1, 1996.)

15.121.020 Minors under supervision of juvenile court—Notification.

It shall be unlawful for any person, company, association or corporation to knowingly harbor, hide or give shelter to any child who is under the supervision of the juvenile court, unless said person, company, association or corporation shall, within twenty-four hours of the child's arrival, notify either the police or the Division of Family Services of the child's presence. (1994 C., § 15.121.020; Ord. No. 63668, § 2, 1996.)

15.121.030 Harboring minor who has violated the law.

It shall be unlawful for any person, company, association or corporation to knowingly harbor, hide or give shelter to any child who has committed an act which, if the minor were an adult, would constitute a violation of any federal, state or local law. (1994 C., § 15.121.030; Ord. No. 63668, § 3, 1996.)

15.121.040 Harboring minor more than forty-eight hours.

However, any person that gives shelter to any minor other than his or her own for forty-eight hours or more without written permission of the parent, legal guardian or court shall notify the police of the minor's presence. (1994 C., § 15.121.040; Ord. No. 63668, § 4, 1996.)

15.121.050 Violation—Penalty.

Any person convicted of violating this chapter shall be punished by a fine of no less than $100.00 and no more than $500.00, or imprisoned for 60 days, or both. Each day of harboring a minor in violation of the provisions of this chapter shall constitute a separate offense. (1994 C., § 15.121.050; Ord. No. 63668, § 5, 1996.)

Chapter 15.122

RENTING ROOMS TO MINORS

Sections:

15.122.010 Written consent.

15.122.020 Applicability.

15.122.030 Penalty for violation.

15.122.010 Written consent.

No owner or general agent shall rent any room, rooms, apartment or any building or portion of a building or structure used or intended for use as a dwelling to a minor under the age of eighteen years without first securing the written consent of the minor's father or mother or, if deceased, his legal guardian or, if none, his next of kin over the age of twenty-one years. The owner or general agent shall keep the written consent and exhibit it upon the demand of the police. (1960 C., § 666.010; 1994 C., § 15.122.010; Ord. No. 55117, § 1, 1968.)

15.122.020 Applicability.

This chapter shall not apply to rentals for the purpose of providing a place of abode for a spouse or child of a married minor under the age of eighteen years, nor to rentals in hotels or motels or to boarding or rooming houses where the owner or manager resides on the premises. (1960 C., § 666.020; 1994 C., § 15.122.020; Ord. No. 55117, § 2, 1968.)

15.122.030 Penalty for violation.

Any owner or general agent of rental property who violates any of the provisions of this chapter shall be

guilty of a misdemeanor and upon conviction shall be punished by a fine of not less than twenty-five dollars nor more than five hundred dollars or by imprisonment for not more than ninety days or by both fine and imprisonment. (1960 C., § 666.030; 1994 C., § 15.122.030; Ord. No. 55117, § 3, 1968.)

Chapter 15.124

TATTOOING, BRANDING OR BODY PIERCING MINORS

Prior history: Ord. 51842; 1960 C. §§ 756.040 and 756.050

Sections:

15.124.010 **Definitions.**

15.124.020 **Parental consent.**

15.124.030 **Intoxicating liquors or controlled substances.**

15.124.040 **License required.**

15.124.050 **Health Commissioner to promulgate rules and regulations.**

15.124.060 **Owner liability.**

15.124.070 **Penalty for violation.**

15.124.010 Definitions.

As used in this chapter the following terms shall have the following meanings:

A. "Body piercing" means the perforation of human tissue, other than an ear, for a nonmedical purpose.

B. "Branding" means a permanent mark made on human tissue by burning with a hot iron or other instrument.

C. "Controlled substance" means any substance defined in RSMo 195.010.

D. "Minor" means a person under the age of eighteen.

E. "Tattoo" means one or more of the following:

1. An indelible mark made on the body of another person by the insertion of a pigment under the skin; or

2. An indelible design made on the body of another person by production of scars other than by branding. (1994 C., § 15.124.010; Ord. No. 64418, § 2, 1998.)

15.124.020 Parental consent.

No person shall tattoo, brand or perform body piercing on a minor unless such person obtains the prior written informed consent of the minor's parent or legal guardian. The minor's parent or legal guardian shall execute the written informed consent required pursuant to this section in the presence of the person performing the tattooing, branding or body piercing on the minor, or in the presence of an employee or agent of such person. (1994 C., § 15.124.020; Ord. No. 64418, § 3, 1998.)

15.124.030 Intoxicating liquors or controlled substances.

A person shall not tattoo, brand or perform body piercing on another person if the other person is under the influence of intoxicating liquor or a controlled substance. (1994 C., § 15.124.030; Ord. No. 64418, § 4, 1998.)

15.124.040 License required.

No practitioner of tattooing, branding or body piercing shall practice and no establishment in which tattoos, brands or body piercing are applied shall be operated without a license issued by the License Collector pursuant to the Revised Code of the City of St. Louis. (1994 C., § 15.124.040; Ord. No. 64418, § 5, 1998.)

15.124.050 Health Commissioner to promulgate rules and regulations.

The Health Commissioner shall promulgate rules and regulations relative to the hygienic practice of tattooing, branding and body piercing and the sanitary operation of establishments offering such services. (1994 C., § 15.124.050; Ord. No. 64418, § 6, 1998.)

15.124.060 Owner liability.

Every act or omission constituting a violation of any of the provisions of this chapter by any employee or other agent of the owner of any establishment where body tattooing, branding or body piercing is performed shall be deemed to be the act or omission of the owner of the establishment and such owner shall be subject to the same penalties as the employee or agent. (1994 C., § 15.124.060; Ord. No. 64418, § 7, 1998.)

15.124.070 Penalty for violation.

Any person found guilty or entering a plea of guilty to any violation of this chapter shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) for each violation or shall be imprisoned for a period not to exceed ninety

(90) days in jail or shall receive both a fine and imprisonment. (1994 C., § 15.124.070; Ord. No. 64418, § 8, 1998.)

Chapter 15.126

PUBLICATIONS

Sections:

15.126.010 Selling or giving away.
15.126.020 Exhibiting.
15.126.030 Employing minor to distribute.
15.126.040 Possession is evidence.

15.126.010 Selling or giving away.

It is unlawful for any person to sell, lend, give away, show, or have in his possession with intent to sell, or give away, or to show, or advertise, or otherwise offer for loan, gift or distribution to any minor child under eighteen years of age, any book, pamphlet, magazine, newspaper, story paper, or other printed paper devoted to the publication or principally made up of criminal news, police reports or accounts of criminal deeds, or pictures and stories of deeds of bloodshed, lust or crime. (1994 C., § 15.126.010; Ord. No. 45462, § 1, 1950.)

15.126.020 Exhibiting.

It is unlawful to exhibit upon any street or highway, or in any other place within the view, or which may be within the view of any minor child under eighteen years of age, any book, pamphlet, magazine, newspaper, story paper, or other paper or publication coming within the description of the matters in Section 15.126.010 or any of them. (1994 C., § 15.126.020; Ord. No. 45462, § 2, 1950.)

15.126.030 Employing minor to distribute.

It is unlawful to hire, use or employ any minor child under eighteen years of age to sell, or give away, or in any manner distribute, or for any person who, having the care, custody or control of any minor child under eighteen years of age to permit the child to sell, give away, or in any manner distribute any book, pamphlet, magazine, newspaper, or story paper or other paper or publication coming within the description of matters mentioned in Section 15.126.010. (1994 C., § 15.126.030; Ord. No. 45462, § 3, 1950.)

15.126.040 Possession is evidence.

The possession of two or more of any books, pamphlets, magazines, newspapers, story papers or other publications coming within the description of the matters mentioned in Section 15.126.010 in any store or place of business to which minor children under eighteen years of age are admitted, or in any public place, shall be prima facie evidence of offering for sale, loan, gift, or other distribution of the same to the minor. (1994 C., § 15.126.040; Ord. No. 45462, § 4, 1950.)

Chapter 15.128

GRAFFITI TOOLS

Editor's Note:

Ord. No. 68066, §§ 1—8, adopted July 28, 2008, repealed Ch. 15.128 and enacted a new chapter as set out herein. The former Ch. 15.128, §§ 15.128.010—15.128.030, pertained to spray paint and derived from Ord. No. 62239, §§ 1—3, 1991.

Sections:

15.128.010 Findings.
15.128.020 Definitions.
15.128.030 Graffiti prohibited.
15.128.040 Sale of graffiti tools regulated.
15.128.050 Display requirements.
15.128.060 Enforcement.
15.128.070 Penalty for violation.

15.128.010 Findings.

The Board of Aldermen for the City of St. Louis finds and declares as follows: It is the purpose of this chapter to target and prevent the sale and distribution of graffiti tools to taggers and other vandals by regulating persons who sell graffiti tools to individuals and to obtain identifying information of such purchasers.

The Board of Aldermen finds that residents of the City of St. Louis have experienced problems with graffiti and tagging by individuals and such criminal conduct constitutes a public nuisance.

The Board of Aldermen finds and determines that graffiti is obnoxious and constitutes a public nuisance and therefore must be abated to avoid any detrimental impact of such graffiti on the City of St. Louis and to prevent the further spread of graffiti and for aesthetic purposes. (1994 C., § 15.128.010; Ord. No. 68066, § 2, 7-28-2008.)

15.128.020 Definitions.

Building. Any structure used for commercial, business or residential purposes, whether or not occupied, and any structure appurtenant to use, including, but

not limited to: garages, fences, retaining walls, facades, highway overpasses, bridges, stud walls, or any other structure within the City of St. Louis.

Graffiti. Any unauthorized mark, inscription, word, figure, picture, notation or design drawn, written, etched, painted, sprayed, marked, posted, pasted or otherwise affixed, drawn, or painted on any surface of any building, public, private or personal property. Graffiti shall not mean a sign lawfully erected and maintained as required by other ordinances.

Graffiti tools. Any spray paint container, indelible marker, paint stick, cream or acid manufactured for the purpose of etching, altering, painting any surface or used for the application of "graffiti" as defined herein.

Indelible marker. Any felt-tip marker or similar implement with a tip that is greater than ⅛ inch at its broadest width containing any ink that is not water-soluble.

Paint stick or graffiti stick. Any device containing a solid form of paint, chalk, wax, epoxy, or other similar substance that is not water-soluble and is capable of being applied to a surface and upon application of leaving a mark.

Person. Includes any human being, corporation, partnership, authority, business, municipality, association, or any other entity able to sue or be sued.

Spray paint container. Any aerosol receptacle, holding paint that can be used to apply paint to any surface described in the definition of graffiti herein.

Structure. Any public or private bridge, overpass, pathway, highway divide, lane marker, billboard, train pass or marker, walls, poles, utility or water towers or feature fixed to land.

Tag or tagging. The application of graffiti to any building, property or personal property.

Tagger. A person who defaces any building, property or personal property with graffiti.

Vendor. Any person who offers for sale and/or transfer any items that constitute graffiti tools for value or any form of consideration. (1994 C., § 15.128.020; Ord. No. 68066, § 3, 7-28-2008.)

15.128.030 Graffiti prohibited.

A. *Prohibited Conduct.* It shall be unlawful for a person to deface, destroy or otherwise damage any public or private building, structure, property or personal property by the application of graffiti without the owner's prior knowledge and consent.

B. *Possession of Graffiti Tools Prohibited.* It shall be unlawful for any person to have in their possession any graffiti tools while on public or private property, without the consent of the owner of said property, structure or building, in a manner that warrants a justifiable and reasonable alarm or immediate concern for the safety of buildings, structures and property in the immediate vicinity. (1994 C., § 15.128.030; Ord. No. 68066, § 4, 7-28-2008.)

15.128.040 Sale of graffiti tools regulated.

No vendor shall sell any graffiti tools to any person under the age of eighteen (18) years of age unless accompanied by an adult parent or guardian. (1994 C., § 15.128.040; Ord. No. 68066, § 5, 7-28-2008.)

15.128.050 Display requirements.

Each vendor selling items constituting graffiti tools shall place a sign in clear public view at or near the display and inventory of graffiti tools. Said sign shall measure not less than eight and one-half (8½) inches by eleven (11) inches, have the City of St. Louis Seal and state "It is illegal for a person to purchase or possess aerosol spray paint containers or any other graffiti tool for the express illegal purpose of graffiti per St. Louis City Ordinance #XXXXX." Signs will be available for distribution by the Department of Public Safety. (1994 C., § 15.128.050; Ord. No. 68066, § 6, 7-28-2008.)

15.128.060 Enforcement.

Enforcement of this chapter shall be the responsibility of the City of St. Louis Department of Public Safety. (1994 C., § 15.128.060; Ord. No. 68066, § 7, 7-28-2008.)

15.128.070 Penalty for violation.

Any person who violates the provisions in Section 15.128.030 of this chapter shall be subject to of a fine of up to five hundred dollars ($500.00) or imprisonment of a term not to exceed ninety (90) days or both at the discretion of the court. In lieu of fines or imprisonment, the court may impose a sentence of community service not to exceed 90 days with the express requirement that the offender clean graffiti from public buildings, structures or property in the City of St. Louis.

Any vendor who violates the provisions in Sections 15.128.040 and 15.128.050 of this chapter shall be subject to of a fine of up to five hundred dollars ($500.00).

All monetary funds collected by the City under this chapter shall be directed to Operation Brightside and utilized for the removal and prevention of graffiti on

public and private properties. (1994 C., § 15.128.070; Ord. No. 68066, § 8, 7-28-2008.)

Chapter 15.129

UNATTENDED CHILDREN IN MOTOR VEHICLES

Sections:

15.129.010 Definitions.

15.129.020 Unattended child.

15.129.030 Penalty for violation.

15.129.010 Definitions.

The following terms have the meaning specified as used in this chapter:

A. "Unattended child" means a child who is not accompanied by another person who is at least fourteen years of age.

B. "Motor vehicle" means any automobile, truck, truck-tractor, or any motor bus or motor-propelled vehicle not exclusively operated or driven on fixed rails or tracks. (1994 C., § 15.129.010; Ord. No. 66699, § 1, 2005.)

15.129.020 Unattended child.

A person responsible for a child who is ten (10) years of age or younger shall not leave that child in a motor vehicle without being supervised in the motor vehicle by a person who is at least fourteen (14) years of age if:

A. The conditions present a risk to the child's health or safety; or

B. The engine of the motor vehicle is running or the keys to the motor vehicle are anywhere in the passenger compartment of the vehicle. (1994 C., § 15.129.020; Ord. No. 66699, § 2, 2005.)

15.129.030 Penalty for violation.

Any person who violates any provision of this chapter shall be subject to a fine of not less than two hundred dollars ($200.00) for the first offense and a fine of not less than five hundred dollars ($500.00) for a second or subsequent violation within any twelve (12) month period. (1994 C., § 15.129.030; Ord. No. 66699, § 3, 2005.)

DIVISION VIII. WEAPONS

Chapter 15.130

CARRYING WEAPONS

Editor's Note:

Ordinance 63453 prohibits the Sheriff from issuing gun permits unless the person shows proof that he or she has a lock or locked container for each gun.

Sections:

15.130.010 Concealed weapons.

15.130.020 By persons guilty of a breach of the peace.

15.130.030 Felon possessing gun.

15.130.040 Exposed in whole or in part.

15.130.050 Unloaded or secured.

15.130.060 Law enforcement officials.

15.130.070 Penalty for violation.

15.130.080 Unlawful possession of a handgun by a minor.

15.130.090 Carrying of concealed firearms by persons who are subject to restraining order.

15.130.010 Concealed weapons.

It shall be unlawful for any person to wear under his clothes, or concealed about his person, any pistol or revolver, colt, billy, sling shot, cross knuckles or knuckles of lead, brass or other metal, bowie knife, razor, dirk knife, dirk, dagger or any knife resembling a bowie knife or any other dangerous or deadly weapon, within the City, without written permission from the Mayor. Any person who shall violate this section shall be guilty of a misdemeanor. Nothing in this section shall prevent any United States, state, county or City officer, or any member of the City government, from carrying or wearing such weapons as may be necessary in the proper discharge of his duties. (1948 C., Ch. 46, § 8; 1960 C. 777.010; 1994 C., § 15.130.010.)

Constitution:

Art. I § 23 Right to keep and bear arms

City Counselor Ops.: 8316, 9919

Cases:

The right to carry concealed weapons is not protected by any constitutional guarantee. *St. Louis v. Vert,* 84 Mo. 204.

McQuillin:

24.490 Carrying concealed weapons

15.130.020 By persons guilty of a breach of the peace.

Whenever there shall be found upon the person of anyone who has been found guilty of a breach of the peace, or of conduct calculated to provoke a breach of the peace, any sling shot, colt or knuckles of lead, brass or other metal; or when upon trial, evidence shall be adduced proving that the weapons were in the possession or on the person of anyone while in the act of commission of the act aforesaid, the person shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 9; 1960 C., § 777.020; 1994 C., § 15.130.020.)

15.130.030 Felon possessing gun.

No person convicted of a felony within the five years immediately preceding under any state or federal law shall own, possess or carry on or about his person in the City any firearm, pistol, revolver, shotgun or rifle. (1960 C., § 777.070; 1994 C., § 15.130.030; Ord. No. 55515, § 1, 1970.)

15.130.040 Exposed in whole or in part.

No person, in any place of public accommodation or at any public gathering or on any public property, street or thoroughfare, shall carry on or about his person, any firearm, pistol, revolver, shotgun, rifle or springback knife, or other weapon proscribed under RSMo 571.010, exposed in whole or in part to view. (1960 C., § 777.030; 1994 C., § 15.130.040; Ord. No. 55516, § 1, 1970.)

15.130.050 Unloaded or secured.

No person shall carry on or about his person any firearm, pistol, revolver, shotgun or rifle beyond the property limits of his residence or business premises in the City unless the firearm, pistol, revolver, shotgun or rifle is unloaded and secured in a locked container or in a case, or is sealed in its original delivery carton after sale by a bona fide dealer. (1960 C., § 777.040; 1994 C., § 15.130.050; Ord. No. 55516, § 2, 1970.)

15.130.060 Law enforcement officials.

The provisions of Sections 15.130.040 and 15.130.050 shall not apply to authorized law enforcement officials of federal, state and local governments in carrying authorized firearms authorized by proper agencies or officials but shall apply to all law enforcements officials in the carrying of personal firearms, pistols, revolvers, shotguns and rifles. (1960 C., § 777.050; 1994 C., § 15.130.060; Ord. No. 55516, § 3, 1970.)

15.130.070 Penalty for violation.

Any person violating the provisions of Sections 15.130.030—15.130.060 shall be guilty of a misdemeanor and upon conviction shall be subject to a fine of not less than one hundred dollars nor more than five hundred dollars or by imprisonment for not more than ninety days, or by both fine and imprisonment. (1960 C., §§ 777.060, 777.080; 1994 C., § 15.130.070; Ord. No. 55516, § 4, 1970; Ord. No. 55515, § 2, 1970.)

15.130.080 Unlawful possession of a handgun by a minor.

A. *Definitions.*

1. The word "concealed" means kept hidden or removed from sight and either on one's person or within a person's reach.

2. The word "handgun" as used in this section means a firearm which has a short stock and is designed to be held and fired by the use of a single hand.

3. The word "minor" as used in this section means a person less than eighteen years old.

B. Unlawful Possession of a Handgun. A minor commits the unlawful possession of a handgun, if the minor knowingly carries concealed upon or about his or her person a handgun or ammunition suitable only for use in a handgun in any place other than those specific places stated in subsection C of this section.

C. The provisions of this section shall not apply to the following places:

1. A temporary transfer of a handgun or ammunition to a minor or to the possession or use of a handgun or ammunition by a minor if the handgun and ammunition are possessed and used by the minor—

a. In the course of employment, in the course of ranching or farming related to activities at the residence of the minor (or on property used for ranching or farming at which the minor, with the permission of the property owner or lessee, is performing activities related to the operation of the farm or ranch), target practice, hunting, or a course of instruction in the safe and lawful use of a handgun;

b. With the prior written consent of the minor's parent or guardian who is not prohibited by Federal, State or local law from possessing a firearm, except—

i. During transportation by the minor of an unloaded handgun in a locked container directly from the place of transfer to a place at which an activity described in above is to take place and transportation by

the minor of that handgun, unloaded and in a locked container, directly from the place at which such an activity took place to the transferor; or

ii. With respect to ranching or farming activities as described above, a minor may possess and use a handgun or ammunition with the prior written approval of the minor's parent or legal guardian and at the direction of an adult who is not prohibited by Federal, State or local law from possessing a firearm;

c. The minor has the prior written consent in the minor's possession at all times when a handgun us in the possession of the minor; and

d. In accordance with state law and the Revised Code; or

2. A minor who is a member of the Armed Forces of the United States or the National Guard who possesses or is armed with a handgun in the line of duty; or

3. A transfer by inheritance of title (but not possession) of a handgun or ammunition to a minor; or

4. The possession of a handgun or ammunition by a minor taken in defense of the minor or other persons against an intruder into the residence of the minor of a residence in which the minor is an invited guest.

D. *Violation and Penalty.* A minor violating this section shall be guilty of an ordinance violation.

1. A minor violating this section shall be guilty of an ordinance violation. A minor violating this section shall be subject to a fine not to exceed $500.00, and a jail sentence of not more than 30 days. (Ord. No. 71072, § 1, 12-23-2019.)

15.130.090 Carrying of concealed firearms by persons who are subject to restraining order.

A. Definitions.

1. The term "concealed" as used in this chapter means to be kept hidden or removed from sight either on one's person or within their reach.

2. The term "intimate partner" as used in this chapter means, with respect to a person, the spouse of the person, the ex-spouse of the person, an individual who is the parent of a child of the person, or an individual that cohabitates or has cohabitated with the person.

3. The term "misdemeanor crime of domestic violence" as used in this chapter:

a. Means an offense that (i.) is a misdemeanor under state, federal, or tribal law; and that (ii.) has as an element, the use or attempted use of physical force, or the threatened use of a deadly weapon committed by a current or former spouse, parent or guardian of the victim, by an individual with whom the victim shares a child in common, by a person who is cohabitating or has cohabitated with the victim as a spouse, parent, or guardian, or a person similarly situated to a spouse, parent, or guardian of the victim.

b. A person shall not be considered to have committed a misdemeanor crime of domestic violence for purposes of this chapter unless (i) the person was represented by counsel in the case, or knowingly and intelligently waived the right to counsel in the case; and (ii) in the case of a prosecution for a misdemeanor crime of domestic violence for which the person was entitled to a jury trial in the jurisdiction in which the case was tried, either the case was tried by a jury, or the person knowingly and intelligently waived the right to have the case tried by a jury, by guilty plea or otherwise.

c. A person shall not be considered to have committed a misdemeanor crime of domestic violence for purposes of this chapter if the conviction has been expunged or set aside, or is an offense for which the person has been pardoned or has had civil rights restored (if the law of the applicable jurisdiction provides for the loss of civil rights for such offense) unless the pardon, expungement, or restoration of civil rights expressly provides that the person may not transport, receive, or possess firearms.

B. The carrying of a concealed firearm shall be prohibited in the City of St. Louis when:

1. The person is carrying a concealed firearm and such person:

a. Is the subject to a court order after a hearing of which such person received actual notice, and at which such person had an opportunity to participate; and the order restrains such person from harassing, stalking, or threatening an intimate partner of such person, or a child of such intimate partner or person; or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the intimate partner or child; and either includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child, or by its terms expressly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child and would reasonably be expected to cause bodily injury; or

b. Has been convicted in any court of a misdemeanor crime of domestic violence.

2. And, the person carrying the concealed firearm is in receipt of a firearm which has been shipped or transported in interstate or foreign commerce.

C. Any person found to be in violation of the provisions of this chapter shall be guilty of an ordinance violation and subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety days (90) or both a fine and term of imprisonment.
(Ord. No. 71104, §§ 1—3, 3-18-2020.)

Chapter 15.131

CONCEALED FIREARMS

RSMo:

RSMo 21.750 (2016) Firearms legislation preempted

Sections:

15.131.010 Prohibited.
15.131.020 Concealed firearms—Airport.
15.131.030 Airport—Prohibited areas.
15.131.040 Notification—General.
15.131.050 Notification—Airport.
15.131.060 Penalty for violation.
15.131.070 Exemptions.

15.131.010 Prohibited.

Except as provided in Section 15.131.020, the carrying of concealed firearms by holders of concealed carry endorsements of driver's or non-driver's licenses issued pursuant to RSMo 571.094 (2003) or a concealed carry endorsement or permit issued by another state or political subdivision of another state ("concealed carry permittees") is hereby prohibited in any portion of buildings, including any sports arena or stadium, owned, leased or controlled by the City of St. Louis ("the City") within and without the City's limits. (1994 C., § 15.131.010; Ord. No. 66186, § 1, 2003.)

15.131.020 Concealed firearms—Airport.

To the extent consistent with applicable federal, state or local laws and regulations, at Lambert-St. Louis International Airport (the "airport") the Director of Airports by written order may allow the carrying of concealed weapons by airline and airport-related personnel as needed in the performance of their duties. Pursuant to applicable federal laws and regulations, unloaded firearms intended to be shipped by aircraft into the terminal buildings in locked cases manufactured for the transportation of firearms may be carried into the Airport's terminal buildings. (1994 C., § 15.131.020; Ord. No. 66186, § 2, 2003.)

15.131.030 Airport—Prohibited areas.

The Director of Airports shall identify areas at the airport, including in the terminal buildings, to which access is controlled by the inspection of persons and

property, such as the aircraft operations area, or other secured areas to which access with concealed firearms and the possession of firearms in a vehicle by concealed carry permittees is prohibited by RSMo 571.094.20(8) or (9). (1994 C., § 15.131.030; Ord. No. 66186, § 3, 2003.)

Editor's Note:

RSMo 571.094 has been recodified as RSMo 571.101 to 571.121.

15.131.040 Notification—General.

The City shall clearly identify the portions of buildings in which the carrying of concealed firearms is prohibited by Section 15.131.010 by signs approved by the City Counselor, which shall be posted at the entrances to such areas. (1994 C., § 15.131.040; Ord. No. 66186, § 4, 2003.)

15.131.050 Notification—Airport.

The Director of Airports, with the approval of the City Counselor, shall devise and post signs informing airport users of restrictions on the carriage of firearms at the airport. (1994 C., § 15.131.050; Ord. No. 66186, § 5, 2003.)

15.131.060 Penalty for violation.

Any person attempting to carry a firearm into a building or area subject to Section 15.131.010 or Section 15.131.030 in violation of such sections of this chapter shall be denied entrance to the building or area. Any person found to be carrying a firearm in an area subject to Section 15.131.010 in violation of such section of this chapter shall be ordered to leave the building or area. (1994 C., § 15.131.060; Ord. No. 66186, § 6, 2003.)

15.131.070 Exemptions.

Buildings used for public housing by private persons, highways or rest areas, firing ranges, and private dwellings owned, leased or controlled by the City are exempt from any restriction by the City on the carrying or possession of a firearm. (1994 C., § 15.131.070; Ord. No. 66186, § 7, 2003.)

Chapter 15.132

FIREARMS USE RESTRICTED

RSMo:

RSMo 571.030 (2016) Unlawful use of weapons

City Counselor Ops.: 8785

McQuillin:

24.492 Discharge of firearms within city

Sections:

15.132.010 Discharging.

15.132.010 Discharging.

No person shall discharge any kind of firearm in this City without permission of the Mayor unless he is:

A. A member of the police force;

B. On duty in a military corps and acting under orders of the commanding officer;

C. A manufacturer of firearms and trying or proving articles manufactured by him, so as not to endanger or injure persons or property in the neighborhood.

Any person violating any of the provisions of this section shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 16; 1960 C., § 787.010; 1994 C., § 15.132.010.)

Chapter 15.133

FIREARMS LEFT IN UNATTENDED VEHICLES

RSMo:

RSMo 21.750 (2016) Firearms legislation preempted

Sections:

15.133.010 Firearms left in unattended vehicles.
15.133.020 Reporting of stolen or lost firearms required.
15.133.030 Penalty for violation.
15.133.040 Rebuttable presumption.

15.133.010 Firearms left in unattended vehicles.

A. *Findings.* The number of motor vehicle burglaries in urban areas is increasing, and in the City of St. Louis has seen an increase in the number of thefts of firearms from unattended motor vehicles. The City of St. Louis finds that it has a compelling local interest in preventing the theft of firearms from unattended vehicles and that requiring reasonable measures to secure firearms left in unattended vehicles will reduce gun thefts, protect the property of the City's law abiding citizens, and prevent stolen guns from falling into the hands of criminals.

B. *Definitions.* As used in this chapter, the following terms shall have the meanings set forth as follows:

1. "Firearm" is any weapon that is designed or adapted to expel a projectile by the action of an explosive;

2. "Locked container" refers to a secure container that is fully enclosed and locked by a padlock, key lock,

combination lock, or similar locking device, including, but not limited to, a safe, gun safe, gun case, or other device that is designed to be or can be used to store a firearm and that is designed to be unlocked only by means of a key, a combination, or other similar means. "Locked container" does not include the glove compartment or utility compartment;

3. "Motor vehicle" is any self-propelled vehicle not operated exclusively upon tracks, except farm tractors;

4. "Trunk" is a fully enclosed compartment that is separate from the main cabin of the motor vehicle;

5. "Unattended" means circumstances in which a person aged 18 or over is not present in a motor vehicle;

6. "Peace officer" is any person who by virtue of his office or public employment is vested by law with a duty to maintain public order or to make arrests for offenses, whether that duty extends to all offenses or is limited to specific offenses.

C. *Requirements for Storage of Firearms in Motor Vehicles.* No person may place, store, or leave a firearm in an unattended motor vehicle, unless the firearm in stored in a locked container which is permanently affixed to the motor vehicle and is not visible from outside the motor vehicle.

1. This section is intended to apply to all motor vehicles located within the City of St. Louis. Notwithstanding the foregoing sentence, nothing in this section shall apply to on-duty peace officers employed by jurisdictions other than the City of St. Louis or to federal officers or military personnel who are acting within the scope of their authority and discharging their official duties.

2. Any peace officer employed by the City of St. Louis is exempt from the requirements of this section, provided that the officer's employing department has a policy regulating the storage of firearms for both on- and off-duty conduct by the officer.

3. Promotion of General Welfare. In enacting and implementing this section, the City is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury. (1994 C., § 15.133.010; Ord. No. 70502, § 1, 2-21-2017.)

15.133.020 Reporting of stolen or lost firearms required.

A. *Findings.* The City of St. Louis finds that it has a compelling local interest to prevent gun thefts, make it easier for law enforcement to locate lost or stolen firearms and to prevent illegal gun trafficking, and therefore enacts reasonable regulations requiring the reporting of lost and stolen firearms as set forth herein. This chapter is not intended to conflict with any state or federal law.

B. *Reporting Requirement.* It is unlawful for any person who owns or possesses a firearm to fail to report the theft or loss of such firearm to the St. Louis Metropolitan Police Department within 48 hours of the time he or she knew or should have known the firearm has been stolen or lost, when either the owner or possessor lives in the City of St. Louis, or the theft or loss of the firearm occurs in the City of St. Louis. A person commits the violation of failure to report a missing or stolen firearm if in violation of this section.

C. *Manner of Reporting.* Such report to the St. Louis Metropolitan Police Department shall include the serial number, make, model, and all identifying features of the firearm, as well as the circumstances surrounding the firearm's status as stolen or missing. (1994 C., § 15.133.020; Ord. No. 70502, § 2, 2-21-2017.)

15.133.030 Penalty for violation.

A violation of this chapter shall be punishable upon conviction by a fine of no more than $500.00 and incarceration of no longer than 90 days, or any combination of both fine and incarceration. There shall be no financial penalty for a first-time offense of Section 15.133.010.C. (1994 C., § 15.133.030; Ord. No. 70502, § 3, 2-21-2017.)

15.133.040 Rebuttable presumption.

Except as described herein, there shall be a rebuttable presumption that any firearm in a vehicle in the City of St. Louis is the property of the driver of said vehicle. The presumption does not apply if the weapon is found on the person of one of the occupants of the vehicle. If the firearm is in an unattended vehicle, there will be a rebuttable presumption that the firearm is the property of the owner of the vehicle. A vehicle owner may rebut the presumption with evidence that the owner did not have actual or constructive possession of the weapon at any time in the City of St. Louis. (1994 C., § 15.133.040; Ord. No. 70502, § 4, 2-21-2017.)

Chapter 15.134

USE, PURCHASE OR POSSESSION OF CERTAIN WEAPONS BY MINORS

RSMo:

RSMo 21.750 (2016) Firearms legislation preempted

Sections:

15.134.010 Possession or discharging.

15.134.020 Sale of weapons.

15.134.030 Parental consent.

15.134.040 Slingshots.

15.134.010 Possession or discharging.

No minor under the age of seventeen years shall have in his possession or discharge on the streets or alleys of the City, or in any park, playground or vacant lot, any air rifle, air gun or pistol, spring gun, or gun or rifle containing a gas-propelled cartridge, tear gas gun, vapor gas gun, or any other similar weapon, whether such be classed as a toy or not, which impels with force a metal pellet of any kind; or in the same areas and under the same circumstances, to propel any metal or sharp pointed arrow. The provisions of this section shall not apply to any park or playground wherein archery or target practice are permitted, nor to any vacant lot when at least one adult person is present at the time. (1948 C., Ch. 46, § 17; 1960 C., § 754.010; 1994 C., § 15.134.010; Ord. No. 53467, § 1(part), 1965; Ord. No. 49182, § 1(part), 1958.)

McQuillin:

24.489 Firearms, weapons and toy guns

24.492 Discharge of firearms within city

15.134.020 Sale of weapons.

No dealer or merchant who sells toys, firearms, guns or similar weapons, shall sell, deliver or give any air rifle, air gun or pistol, spring gun, or gun or rifle operated with a gas-propelled cartridge, metal or sharp pointed arrow, tear gas gun, vapor gas gun, or any other similar weapon, to any minor under the age of seventeen years. (1960 C., § 754.020; 1994 C., § 15.134.020; Ord. No. 53467, § 1(part), 1965; Ord. No. 49182, § 1(part), 1958.)

15.134.030 Parental consent.

No person shall sell or deliver, loan or barter, either directly or indirectly, to any minor under the age of twenty-one years, any kind of firearms, bowie knife, springback knife, razor, metal knucks, bill, sword cane, dirk, dagger, sling shot, or other similar deadly weapon, or tear gas gun, vapor gas gun, or any other similar weapon, without the consent of the parent or guardian of the minor. (1960 C., § 754.030; 1994 C., § 15.134.030; Ord. No. 53467, § 1(part), 1965; Ord. No. 51507, § 2, 1962; Ord. No. 47510, § 1, 1955.)

15.134.040 Slingshots.

No person shall sell, offer for sale, distribute, barter, loan or give away any slingshot within the City. (1960 C., § 754.040; 1994 C., § 15.134.040; Ord. No. 51506, 1962.)

Chapter 15.135

PROJECTILE WEAPONS

Sections:

15.135.010 Definitions.

15.135.020 Sale to minors.

15.135.030 Possession.

15.135.040 Penalty for violation.

15.135.010 Definitions.

As used in this chapter the following definitions shall apply:

"Projectile weapon" means any weapon with a barrel that is not a firearm as defined by RSMo 571.010(8) which is capable of expelling a projectile that could inflict serious physical injury or death by striking or piercing a person.

"Concealable projectile weapon" shall mean any weapon with a barrel less than sixteen inches in length, measured from the face of the bolt or standing breech. (1994 C., § 15.135.010; Ord. No. 65483, § 1, 2001.)

15.135.020 Sale to minors.

No dealer or merchant shall sell, lease, loan, give away or deliver a concealable projectile weapon to any person under the age of twenty-one. (1994 C., § 15.135.020; Ord. No. 65483, § 2, 2001.)

15.135.030 Possession.

No person shall possess a concealed projectile weapon upon any street, alley, park, playground, vacant lot or publicly accessible building within the City of St. Louis. (1994 C., § 15.135.030; Ord. No. 65483, § 3, 2001.)

15.135.040 Penalty for violation.

Any person found guilty of violating any provision of this chapter shall be fined not less than two hundred

dollars ($200.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than ninety (90) days or both such fine and imprisonment. (1994 C., § 15.135.040; Ord. No. 65483, § 4, 2001.)

Chapter 15.136

MARTIAL ARTS WEAPONS

Sections:

15.136.010 **Nunchaku—Prohibited—Exceptions.**

15.136.020 **Throwing stars—Prohibited.**

15.136.030 **Penalty for violation.**

15.136.010 Nunchaku—Prohibited—Exceptions.

A. It is hereby prohibited for any person or individual to engage in the sale or purchase, or to have on their person or in their possession an object or item known as a Nunchaku.

B. A Nunchaku is hereby defined as follows: Nunchaku or any other similar flailing instrument consisting of two or more rigid parts connected in such a manner as to allow them to swing freely, which instrument may also be known as a "Nunchuck or Nun Chanka," Shuriken fighting chain or any weapon of like kind.

C. Nothing herein contained shall be construed or interpreted to prohibit the use of said Nunchaku at a regularly scheduled or regularly held class teaching the martial arts; further, to the degree said school must acquire or possess said object for their students, said acquisition or possession shall be legal, for use only upon the school premises. (1994 C., § 15.136.010; Ord. No. 59566, §§ 1, 2, 1985.)

15.136.020 Throwing stars—Prohibited.

A. The sale, purchase or possession of an object or item known as a throwing star as herein defined is prohibited.

B. "Throwing star" is any instrument, without handles consisting of a metal plate having three or more radiating points with one or more sharp edges and designed in the shape of a polygon, trefoil, cross star, diamond or other geometric shape that can be used as a weapon for throwing. (1994 C., § 15.136.020; Ord. No. 59569, § 1, 1985.)

15.136.030 Penalty for violation.

Any person found guilty of violating the provisions of this chapter shall be fined not less than fifty ($50.00) dollars nor more than five hundred ($500.00) dollars or imprisonment for not more than ninety (90) days or both such fine and imprisonment. (1994 C., § 15.136.030; Ord. No. 59569, § 2, 1985; Ord. No. 59566, § 3, 1985.)

Chapter 15.137

CONCEALED CARRY OF FIREARMS

Sections:

15.137.010 **Unlawful display of a weapon.**

15.137.020 **Penalty for violations.**

15.137.030 **Record keeping and annual reporting.**

15.137.040 **Enforcement policy.**

15.137.010 Unlawful display of a weapon.

A. A person commits the ordinance violation of unlawful display of a weapon if he or she knowingly openly carries or displays a firearm readily capable of lethal use within the City of St. Louis unless the person possesses a valid Missouri concealed carry endorsement, or a valid concealed carry endorsement or permit issued by another state or political subdivision of another state that is recognized by the State of Missouri and displays the concealed carry endorsement or permit upon demand of a law enforcement officer except as provided in Subsection B of this Section 15.137.010.

B. Subsection A of this Section 15.137.010 shall not apply to or affect any of the following:

1. All state, county and municipal peace officers who have completed the training required by the police officer standards and training commission pursuant to RSMo 590.030 to 590.050 and who possess the duty and power of arrest for violation of the general criminal laws of the state or for violation of ordinances of counties or municipalities of the state, whether such officers are on or off duty, and whether such officers are within or outside of the law enforcement agency's jurisdiction, or all qualified retired peace officers, as defined in RSMo 571.030.12, and who carry the identification defined in RSMo 571.030.13, or any person summoned by such officers to assist in making arrests or preserving the peace while actually engaged in assisting such officer;

2. Wardens, superintendents and keepers of prisons, penitentiaries, jails and other institutions for the detention of persons accused or convicted of crime;

3. Members of the armed forces or national guard while performing their official duty;

4. Those persons vested by Article V, Section 1 of the Constitution of Missouri with the judicial power of the state and those persons vested by Article III of the Constitution of the United States with the judicial power of the United States, the members of the federal judiciary;

5. Any person whose bona fide duty is to execute process, civil or criminal;

6. Any federal probation officer or federal flight deck officer as defined under the federal flight deck officer program, 49 U.S.C. Section 44921, regardless of whether such officers are on duty, or within the law enforcement agency's jurisdiction;

7. Any state probation or parole officer, including supervisors and members of the board of probation and parole;

8. Any corporate security advisor meeting the definition and fulfilling the requirements of the regulations established by the Missouri Department of Public Safety under RSMo 590.750;

9. Any coroner, deputy coroner, medical examiner, or assistant medical examiner,

10. Any municipal or county prosecuting attorney or assistant prosecuting attorney; circuit attorney or assistant circuit attorney; municipal, associate, or circuit judge; or any person appointed by a court to be a special prosecutor who has completed the firearms safety training course required under RSMo 571.111.2;

11. Any member of a fire department or fire protection district who is employed on a full-time basis as a fire investigator and who possesses a valid Missouri concealed carry endorsement, when such uses are reasonably associated with or are necessary to the fulfillment of such person's official duties; and

12. Upon the written approval of the governing body of a fire department or fire protection district, any paid fire department or fire protection district member who is employed on a full-time basis and who possesses a valid Missouri concealed carry endorsement, when such uses are reasonably associated with or are necessary to the fulfillment of such person's official duties.

13. Any persons who are engaged in a lawful act of defense pursuant to RSMo 563.031.

C. Subsection A of this Section 15.137.010 shall not be construed to preclude the use of a firearm in accordance with RSMo 252.243.

(Ord. No. 71717, § 1, 7-24-2023.)

15.137.020 Penalty for violations.

A. For those individuals eighteen (18) years of age or older, a violation of the provisions of this chapter may be punished by a fine of not more than five hundred dollars ($500.00), period of incarceration not to exceed thirty (30) days, or both such fine and period of incarceration or community service for a period of hours to be determined by the court.

B. For those individuals under eighteen (18) years of age, a violation of the provisions of this chapter may be punished by a fine of not more than five hundred dollars ($500.00), or community service for a period of hours to be determined by the court.

C. Subsection A of this Section 15.137.020 shall not apply under the following circumstances:

1. A person who holds a valid Missouri concealed carry endorsement, or a valid concealed carry endorsement or permit issued by another state or political subdivision of another state that is recognized by the State of Missouri who openly carries a firearm readily capable of lethal use without having their concealed carry endorsement of permit in their possession, in which circumstances they may be punished by a fine of not more than thirty-five dollars ($35.00).

2. A person who holds a valid Missouri concealed carry endorsement, or a valid concealed carry endorsement or permit issued by another state or political subdivision of another state that is recognized by the State of Missouri who openly carries a firearm readily capable of lethal use who fails to display their concealed carry permit of endorsement upon demand of a law enforcement officer, in which circumstances they may be punished by a fine of not more than thirty-five dollars ($35.00).

(Ord. No. 71717, § 2, 7-24-2023.)

15.137.030 Record keeping and annual reporting.

The City's Metropolitan Police Department (the "Department") shall establish a policy and clear procedures to record and track the number and locations of stops where citations are not issued and stops where citations are issued for violations of Section 15.137.010 of this chapter and stops that result in arrests, and the race and gender of all persons who are stopped. Records of stops shall be made using a standard form to be developed by the Department. The policy shall include procedures for:

1. Receiving and maintaining records of stops where a citation is not issued and stops where a citation

is issued for a violation of Section 15.137.010 of this chapter and stops result in arrests, and the race and gender of all persons who are stopped.

2. Making records available to the public as requested using a standard request for records form developed by the Department, and for receiving and responding to requests for records in a timely fashion. The Department shall compile an annual report of the information collected pursuant to this Section 15.137.030, during the preceding twelve-month period, and any related information the Department deems relevant and necessary. Provided, however, that the initial report shall contain information compiled during the period-of-time from the effective date of this ordinance and the reporting deadline. The Department shall complete the report and publish a copy thereof on the Department's website by January 1, of each year.
(Ord. No. 71717, § 3, 7-24-2023.)

15.137.040 Enforcement policy.

The Police Division shall, in consultation with the Director of Public Safety and the City Counselor, develop a policy document or special order consistent with federal, state, and local laws outlining the procedures for enforcement of this ordinance no later than and, in any event, before any enforcement action.
(Ord. No. 71717, § 4, 7-24-2023.)

Chapter 15.138

UNLAWFUL OPEN CARRY OF A WEAPON

Sections:

15.138.010 Unlawful open carry of a weapon; exceptions.

15.138.020 Penalties for violations.

15.138.010 Unlawful open carry of a weapon; exceptions.

A. It shall be unlawful to openly carry a firearm in any public place or on any public street within the City of St. Louis. A person commits the ordinance violation of unlawful open carry of a weapon if they knowingly openly carry or display a firearm readily capable of lethal use in any public place or on any public street within the City of St. Louis.

B. Subsection A shall not apply to law enforcement officers, those required to openly carry firearms as required for their official duty, or to individuals on private property with the documented approval of the owner of the property.

C. This section shall not apply to those who are carrying a weapon in a concealed manner and absent view from the public.
(Ord. No. 71750, § 1, 12-5-2023.)

15.138.020 Penalties for violations.

A. For those individuals eighteen (18) years of age or older, a violation of the provisions of this chapter may be punished by a fine of not more than five hundred dollars ($500.00,) period of incarceration not to exceed thirty (30) days, or both such fine and period of incarceration.
(Ord. No. 71750, § 1, 12-5-2023.)

Chapter 15.139

UNLAWFUL DISCHARGE OF A FIREARM

Sections:

15.139.010 Unlawful discharge of a firearm.

15.139.020 Exceptions.

15.139.030 Penalty provisions.

15.139.040 Reporting.

15.139.010 Unlawful discharge of a firearm.

A person commits the City ordinance offense of "Unlawful Discharge of a Firearm" if they recklessly discharge a firearm within or into the limits of the City of St. Louis.
(Ord. No. 71915, § 1, 11-7-2024; Ord. No. 71820, § 1, 4-16-2024.)

15.139.020 Exceptions.

The provisions of Section 15.139.020 of this chapter shall not apply if the firearm is discharged:

(1) As allowed by a defense of justification under RSMo Ch. 563;

(2) On a shooting range supervised by any person eighteen (18) years of age or older; that is:

a. Indoor.

b. Owned or operated by the state or any political subdivision;

c. A commercial shooting range, including any range used by paying members; and

d. Supervised by any person eighteen (18) years of age or older.

(3) To lawfully take wildlife during an open season established by the department of conservation. Nothing in this subdivision shall prevent a municipality

from adopting an ordinance restricting the discharge of a firearm within one-quarter (0.25) mile of an occupied structure.

(4) For the control of nuisance wildlife as permitted by the department of conservation or the United States Fish and Wildlife Service;

(5) By special permit of the chief of police of the City of St. Louis;

(6) As required by an animal control officer in the performance of their duties;

(7) Using blanks;

(8) More than one (1) mile from any occupied structure;

(9) In self-defense or defense of another person against an imminent or ongoing animal attack unless the self-defense or defense of another person is a gross deviation from the standard of care which a reasonable person would exercise in the situation to protect oneself or the other person from such animal attack and such person shall not have a duty to retreat; or

(10) By law enforcement personnel, as defined in RSMo § 590.1040, or its successor statute, or a member of the United States Armed Forces if acting in an official capacity.

(Ord. No. 71915, § 2, 11-7-2024; Ord. No. 71820, § 2, 4-16-2024.)

15.139.030 Penalty provisions.

A. The penalty for a violation of Section 15.139.010 shall be as follows:

1. For individuals aged eighteen (18) years or older, a violation of this chapter may be punished accordingly:

a. For a first offense, a fine of up to five hundred dollars ($500.00), a period of incarceration of up to thirty (30) days, or both such fine and period of incarceration to be determined by the court;

b. For a second offense, a fine of up to five hundred dollars ($500.00), a period of incarceration of up to sixty (60) days, or both such fine and period of incarceration to be determined by the court;

c. For a third or subsequent offense, a fine of up to five hundred dollars ($500.00), a period of incarceration of up to ninety (90) days, or both such fine and period of incarceration to be determined by the court;

2. For individuals under eighteen (18) years of age, a violation of this chapter may be punished in accordance with the provisions set forth under RSMo 211.031.1(3) and 211.181.3, as determined by the court.

B. All fines issued by the courts pursuant to violations of this chapter shall be paid to and through the courts, with monies distributed by the courts according to law. Any funds received under this chapter by the City from the courts shall be allocated by the Comptroller's office in accordance with applicable law and as follows for the following purposes:

1. To the Office of Violence Prevention, for services that:

a. Prevent violence;

b. Provide youth in the City who encounter the criminal justice system with mental and behavioral health support; and

c. Support survivors and victims of violent crime in the City; and

2. To the City and the municipal courts, for administrative costs associated with the enforcement of this chapter.

(Ord. No. 71820, § 3, 4-16-2024.)

15.139.040 Reporting.

The St. Louis Metropolitan Police Department ("SLMPD") shall establish a policy and procedures to track and record the number of violations of this chapter, including the race and gender of individuals who are charged with violating this chapter. To the extent allowable under law, the SLMPD shall make such records available to the public upon request. Beginning in 2024, the SLPMD shall produce an annual report of the number of violations under this chapter that occurred during the prior calendar year, including the race and gender of individuals who are charged with violating this chapter, and shall publish such report on the SLMPD's website by January 31 of each year.

(Ord. No. 71820, § 4, 4-16-2024.)

DIVISION IX. MISCELLANEOUS OFFENSES AND REGULATIONS

Chapter 15.140

BEEKEEPING

RSMo:

RSMo 264.011 et seq. Apiaries

McQuillin:

24.298 Beekeeping

Sections:

15.140.010 Limited.

15.140.020 Penalty for violation.

15.140.010 Limited.

No person, firm or corporation shall keep, or cause to be kept, within the City six or more beehives. (1960 C., § 806.010; 1994 C., § 15.140.010; Ord. No. 54405, § 1, 1966.)

15.140.020 Penalty for violation.

Any person, firm or corporation who shall violate the provisions of this chapter shall, upon conviction, be fined not less than fifty dollars nor more than five hundred dollars, or by imprisonment for not more than ninety days, or by both fine and imprisonment. (1960 C., § 806.020; 1994 C., § 15.140.020; Ord. No. 54405, § 2, 1966.)

Chapter 15.142

RESERVED

Editor's Note:

Ord. No. 71934, § 5, approved November 26, 2024, amended the Code by repealing former Ch. 15.142, § 15.142.010, which pertained to bringing paupers and insane persons into city, and derived from the 1948 Code, Ch. 46, § 44; the 1960 Code, Ch. 800; and the 1994 Code, § 15.142.010.

Chapter 15.144

RAILROADS

Sections:

15.144.010 Applicability.
15.144.020 Bell to be sounded when moving.
15.144.030 Man to be stationed on top of car when backing.
15.144.040 Brakemen.
15.144.050 Steam or other whistles of danger.
15.144.060 Climbing on cars while in motion.

15.144.010 Applicability.

The provisions of this chapter shall apply to every car, cars or locomotives whether propelled by steam, diesel, electric or other power. (1948 C., Ch. 63, § 2; 1994 C., § 15.144.010.)

15.144.020 Bell to be sounded when moving.

When moving, the bell of every railroad engine shall be constantly sounded within the City limits. (1948 C., Ch. 63, § 3; 1994 C., § 15.144.020.)

15.144.030 Man to be stationed on top of car when backing.

If any freight car, cars or locomotives propelled by steam, diesel, electric or other power be backing within the City limits, a man shall be stationed on top of the car at the end of the train farthest from the engine, to give danger signals. (1948 C., Ch. 63, § 4; 1994 C., § 15.144.030.)

15.144.040 Brakemen.

No freight train shall at any time be moved within the City limits unless it be well manned with experienced brakemen at their posts, who shall be stationed to see the danger signals and hear the signals from the engine. (1948 C., Ch. 63, § 5; 1994 C., § 15.144.040.)

15.144.050 Steam or other whistles of danger.

Steam or other whistles of danger shall in no case be sounded except in giving usual signals for running trains. (1948 C., Ch. 63, § 6; 1994 C., § 15.144.050.)

15.144.060 Climbing on cars while in motion.

Any person, minor or adult, who shall climb upon, hold to, or in any manner attach himself to any locomotive engine or car while the same shall be in motion or running into or through this City, shall be guilty of a misdemeanor. This section shall not apply to any employee of the railroad company, nor to any passenger, nor to any other person who may be acting by permission or under the rules of the company, then operating the road. (1948 C., Ch. 63, § 7; 1960 C., § 599.020; 1994 C., § 15.144.060.)

Chapter 15.146

SEATS FOR FEMALE EMPLOYEES

Ops. Atty. Gen.: An employer must provide seats for all employees or prove that business necessity precludes such seats and not provide them for any employees. Ops. Atty. Gen. Mo. 287, 12-21-73.

Sections:

15.146.010 Mercantile establishments.

15.146.010 Mercantile establishments.

It shall be the duty of all employers of females in any mercantile business or occupation to provide and maintain suitable seats for the use of female employees, at or beside the counter or work bench where employed, and to permit the use of seats by employees to an extent as may be reasonable for the preservation of their health. Any violation of this section by any employer shall be a misdemeanor. (1948 C., Ch. 46, § 24; 1960 C., § 657.010; 1994 C., § 15.146.010.)

Chapter 15.148

ASSEMBLY ROOM RECORDS

Sections:

15.148.010 Manager to keep—Inspection.

15.148.010 Manager to keep—Inspection.

Any manager of an assembly room or hall, which is devoted to the purposes of assembly or entertainment and used for public or semipublic purposes, shall keep a book in which shall be legibly written, in the English language, at the time of the rental of the assembly room or hall, the name and address of the party to whom the assembly room or hall may be rented and the purposes for which it is to be used. Every rental shall be separately recorded in the book and shall bear a consecutive number, commencing with the figure one. This record shall at all reasonable hours, be open to the inspection of any police officer or any person having a written order from the Chief of Police.

Any person, who shall fail or refuse to comply with or shall violate any of the provisions of this section shall be guilty of a misdemeanor. (1948 C., Ch. 46, § 3; 1960 C., Ch. 660; 1994 C., § 15.148.010.)

Editor's Note:

Due to the transition of the police department to the division of police of the City, the chief of police is now the commissioner of police.

Chapter 15.150

ELECTRIC STORAGE BATTERIES

Sections:

15.150.010 Definitions.
15.150.020 Permit—Required.
15.150.030 Permit—Application.
15.150.040 Inspection of premises.
15.150.050 Hearing—When Health Commissioner denies permit.
15.150.060 Hearing—When Board of Public Service denies permit.
15.150.070 Bond.
15.150.080 Regulations.
15.150.090 Failure to comply with regulations.
15.150.100 Penalty for violation of Sections 15.150.010—15.150.090.
15.150.105 Applicability of provisions to cases which are reused.
15.150.110 Rented storage batteries—Removal or destroying words, marks or characters.
15.150.120 Rented storage batteries—Sale or unauthorized disposal.
15.150.130 Rented storage batteries—Not to be received for recharging.
15.150.140 Rented storage batteries—Retention after ten days without written consent.

15.150.010 Definitions.

The terms and words used in this chapter shall have the following meanings:

A. "Electric storage battery cases" means all storage battery containers of a combustible nature from which voltaic cells containing lead or its compounds have been removed;

B. "Person" means and includes any person, partnership, corporation or association;

C. "Salvage" of electric storage batteries means the removal of voltaic cells containing lead or its compounds from the case enclosing them;

D. "Transportation" means the movement of electric storage battery cases through the streets of the City by automobile, truck, or any other vehicle. (1960 C., § 501.010; 1994 C., § 15.150.010; Ord. No. 44787, § 1, 1948.)

15.150.020 Permit—Required.

No person shall salvage, store, transport, sell, burn, or otherwise dispose of electric storage battery cases without first having secured a permit from the Board of Public Service to do so, and unless the permit is in full force and effect. (1960 C., § 501.020; 1994 C., § 15.150.020; Ord. No. 44787, § 2, 1948.)

15.150.030 Permit—Application.

Any person desiring to salvage, store, transport or dispose of electric storage battery cases in the City shall file with the Health Commissioner an application so to do. The application shall be on a form provided by the Health Commissioner stating the location of the premises at which electrical storage battery cases are to be salvaged, the facilities for their storage and other information as the Health Commissioner may reasonably require for the adequate protection of the public health. (1960 C., § 501.030(part); 1994 C., § 15.150.030; Ord. No. 44787, § 3(part), 1948.)

15.150.040 Inspection of premises.

Upon the filing of the application, the Health Commissioner shall cause the premises therein described to be inspected, and forward to the Board of Public Service and to the applicant a copy of his report and his recommendation. (1960 C., § 501.030(part); 1994 C., § 15.150.040; Ord. No. 44787, § 3(part), 1948.)

15.150.050 Hearing—When Health Commissioner denies permit.

Should the Health Commissioner recommend that the permit not be issued the applicant may, within ten days after receiving the same, apply to the Board of Public Service for a hearing. The applicant shall be entitled to present testimony at the hearing, after which the Board shall make an order directing the permit to be issued or it shall make an order that the permit be

refused, stating its reason therefor. (1960 C., § 501.040(part); 1994 C., § 15.150.050; Ord. No. 44787, § 3(part), 1948.)

15.150.060 Hearing—When Board of Public Service denies permit.

If the Board fails to issue the permit notwithstanding the favorable recommendation of the Health Commissioner, it shall notify the applicant of its action and the reason therefor and a day upon which he may be heard by the Board before it shall finally determine whether the permit be issued. (1960 C., § 501.040(part); 1994 C., § 15.150.060; Ord. No. 44787, § 3(part), 1948.)

15.150.070 Bond.

Before the permit provided for in this chapter shall be delivered to the applicant he shall file with the Board of Public Service a bond to the City in the penal sum of two thousand dollars executed by an insurance or bonding company authorized or lawfully permitted to do a bonding business in this state, conditioned that the principal will not violate any of the provisions of this chapter or any lawful regulation made pursuant thereto, and that he will pay all fines and forfeitures adjudged against him for any violation of this chapter. The bond shall also be for the benefit of and may be sued on by any person injured by any violation by the principal of the requirements of this chapter or any lawful regulation made pursuant thereto. Any surety may withdraw from the bond by serving ten days' written notice on the Board of Public Service by delivering a copy thereof to the person in charge of its office, or by registered mail, whereupon, it shall be the duty of the principal to file another bond in accordance with this chapter. Upon the expiration of the ten days the Board of Public Service shall mark the bond "withdrawn" with the date the withdrawal becomes effective, and thereupon the liability of the surety shall cease as to any violation of its conditions after the date upon which withdrawal becomes effective. Unless a new bond, conditioned as aforesaid, is filed on or before the effective date of the withdrawal, the Board of Public Service shall suspend the permit of the principal and if a new bond is not filed within such time as the Board may require, it may revoke the permit of the principal. (1960 C., § 501.050; 1994 C., § 15.150.070; Ord. No. 44787, § 4, 1948.)

15.150.080 Regulations.

The Health Commissioner with the approval of the Director of Public Welfare is authorized to adopt reasonable regulations governing the salvaging, storing, transportation and disposition of electric storage battery cases as are reasonably necessary to prevent the cases from coming into the possession of persons who may burn, or cause to permit them to be burned, and thereby generate poisonous fumes that are dangerous to the life and health of the public. (1960 C., § 501.060; 1994 C., § 15.150.080; Ord. No. 44787, § 5, 1948.)

15.150.090 Failure to comply with regulations.

If the holder of any permit provided for in this chapter shall fail to comply with the requirements thereof, or any lawful regulation of the Health Commissioner made pursuant thereto, the Board of Public Service may suspend, and after a hearing may revoke the permit. (1960 C., § 501.070; 1994 C., § 15.150.090; Ord. No. 44787, § 6, 1948.)

15.150.100 Penalty for violation of Sections 15.150.010—15.150.090.

Any person violating, or causing to be violated, any provision of Sections 15.150.010—15.150.090 shall be guilty of a misdemeanor, and upon conviction shall be fined not less than five dollars nor more than five hundred dollars. (1960 C., § 501.080; 1994 C., § 15.150.100; Ord. No. 44787, § 7, 1948.)

15.150.105 Applicability of provisions to cases which are reused.

The provision of Sections 15.150.010—15.150.090 shall not apply to the salvaging, storing, transportation or disposition of electric storage battery cases which are to be again used for some manufacturing purpose. (1994 C., § 15.150.105; Ord. No. 44787, § 8, 1948.)

15.150.110 Rented storage batteries—Removal or destroying words, marks or characters.

No person having in his possession a rented storage battery shall remove, deface, alter or destroy, or cause to be removed, defaced, altered or destroyed, the word "rental" or any other word, mark or character printed, painted, stamped upon or attached to the battery. (1948 C., Ch. 46, § 63; 1960 C., § 790.010; 1994 C., § 15.150.110.)

15.150.120 Rented storage batteries—Sale or unauthorized disposal.

No person shall sell, dispose of, deliver or give, or attempt to sell, dispose of, deliver or give to any person other than the owner thereof, or such persons as may be duly authorized to act for the owner, any rented storage

battery upon which the word "rental" or any other word, mark or character is printed, painted, or stamped, or to which a mark is attached in any way. (1948 C., Ch. 46, § 64; 1960 C., § 790.020; 1994 C., § 15.150.120.)

15.150.130 Rented storage batteries—Not to be received for recharging.

No person engaged in the business of buying, selling or recharging electric storage batteries shall, without the express permission of the owner thereof, except in case of emergency, receive or retain in his possession, or recharge, any electric storage battery owned by any other person upon which the word "rental" or any other word, mark or character is printed, painted or stamped, or to which a mark is attached in any way. (1948 C., Ch. 46, § 65; 1960 C., § 790.030; 1994 C., § 15.150.130.)

15.150.140 Rented storage batteries—Retention after ten days without written consent.

No person shall retain in his possession for a longer period than ten days, without the written consent of the owner, any electric storage battery owned by any other person upon which the word "rental" or any other word, mark or character is printed, painted or stamped, or to which a mark is attached in any way. (1948 C., Ch. 46, § 66; 1960 C., § 790.040; 1994 C., § 15.150.140.)

Chapter 15.152

DEEDS LAW

Sections:

15.152.010 Title.
15.152.020 Legislative findings and purposes.
15.152.030 Requirements for deeds.
15.152.040 Recorder of Deeds.
15.152.050 Penalty for violation.

15.152.010 Title.

This chapter shall be known and may be cited and referred to as the "Requirements for Deeds Law." (1994 C., § 15.152.010; Ord. No. 56141, § 1, 1972.)

15.152.020 Legislative findings and purposes.

The Board of Aldermen finds that the use of straw parties in real estate transactions impairs the investigation and prosecution of arson and undermines the efforts of the City to obtain compliance with its ordinances prescribing minimum safety and health standards for buildings; that straw parties have been used to conceal the identity of persons receiving fire insurance proceeds and of persons responsible for arson perpetrated in order to collect fire insurance; that straw parties in some cases are dead, nonexistent or insolvent; that straw parties in some cases are persons of little or no business experience and are unaware of the legal responsibilities which accrue to real estate conveyances; that some conveyances are made to persons who do not know that real estate has been conveyed to them and who have not accepted such conveyances; that the grantors of conveyances made for the purpose of evading responsibility for arson and housing violations are often difficult to locate for the purposes of investigation and prosecution; and that the improper use of straw parties has occurred on a widespread, casual and indiscriminate basis. The Board of Aldermen declares that it is the purpose of this chapter to eliminate these occurrences by requiring upon a deed:

A. The address of the grantor, thus making him accessible to appropriate governmental officers; and

B. The notarized signature of the grantee, thus both preventing conveyances to unknowing, unwilling, dead or nonexistent persons, and calling the attention of the grantee to the fact that the conveyance of real estate has significant legal consequences. (1994 C., § 15.152.020; Ord. No. 56141, § 2, 1972.)

15.152.030 Requirements for deeds.

In addition to all other requirements prescribed by law, all deeds or other conveyances of lands situated in the City, or of any estate or interest therein, including all warranty deeds (general or special), quitclaim deeds, and deeds of trust, but excluding all easements and rights-of-way:

A. Shall contain the residence address of the grantor; and

B. Shall be subscribed by all of the grantees thereof (excluding, in the case of deeds of trust, all lenders and trustees), or by their lawful agents, which subscription shall be acknowledged or proved and certified, all in the same manner as is prescribed by law for the subscription by the grantor and the acknowledgment or proof and certification thereof. Where a deed conveys a life estate and a remainder, only the subscription of the life tenant shall be required. (1994 C., § 15.152.030; Ord. No. 65038, § 1, 2000; Ord. No. 56141, § 3, 1972.)

15.152.040 Recorder of Deeds.

The Recorder of Deeds shall not record any deed or conveyance which does not comply with the require-

ments of Section 15.152.030. (1994 C., § 15.152.040; Ord. No. 56141, § 5, 1972.)

15.152.050 Penalty for violation.

Any person who is a party to any deed or conveyance which does not comply with the requirements of Section 15.152.030 shall, upon conviction, be sentenced to a fine of not more than five hundred dollars or to imprisonment for not more than ninety days or to both fine and imprisonment. (1994 C., § 15.152.050; Ord. No. 56141, § 4, 1972.)

Chapter 15.154

STRAW PARTY REGISTRATION AND CONTROL LAW

Sections:

15.154.010 Title.
15.154.020 Legislative findings and purpose.
15.154.030 Definitions.
15.154.040 Future conveyances and deeds of trust.
15.154.050 Former conveyances and deeds of trust.
15.154.060 Additional requirements for all conveyances and deeds of trust.
15.154.070 Amended registration statements.
15.154.080 Penalty for violation.
15.154.090 Immunity from prosecution.
15.154.100 Registration statement—Contents.
15.154.110 Registration statement—Indexing and confidentiality.
15.154.120 Liability of beneficial owners.
15.154.130 Effect on titles and instruments.

15.154.010 Title.

This chapter shall be known and may be cited and referred to as the "Straw Party Registration and Control Law." (1994 C., § 15.154.010; Ord. No. 56140, § 1, 1972.)

15.154.020 Legislative findings and purpose.

The Board of Aldermen of the City finds that in numerous instances straw parties are being used as the record parties to transactions involving real estate situated within the City as a means to conceal the identity of the true parties thereto; that such concealment impairs and prevents the prosecution of persons responsible for arson and for violation of ordinances prescribing minimum safety and health standards for the condition of buildings; and that, as a consequence, arson for profit has occurred within the City, fire insurance companies have been defrauded resulting in increased fire insurance premiums for all owners of property within the City, and the lives, health, safety and welfare of citizens of the City and the value of property within the City have been harmed and continue to be threatened and endangered. The Board of Aldermen declares that it is the purpose of this chapter to prevent these harmful occurrences by requiring the registration of straw parties as recommended by the September, 1971 term of the grand jury for the City, and by requiring the true owners of real estate to comply with the ordinances of the City, while at the same time leaving undisturbed bona fide trust and probate arrangements. (1994 C., § 15.154.020; Ord. No. 56140, § 2, 1972.)

15.154.030 Definitions.

As used in this chapter, the following terms shall have the following meanings:

A. "Bona fide trust" means any written indenture of trust which meets all of the following requirements:

1. No beneficiary of the trust has any power to control or direct the management, investment, or distribution of trust assets or trust income;

2. No grantor of trust assets is, or can become, a beneficiary of the trust;

3. No grantor of trust assets can receive any distribution of the assets or income of the trust;

4. No grantor of trust assets retains any power to control or direct the management, investment or disposition of trust assets or income; and

5. No grantor of trust assets retains any power to terminate the trust created by the indenture.

B. "Person" means any natural person, firm, partnership, joint venture, corporation, trust, association, organization, or other entity. (1994 C., § 15.154.030; Ord. No. 56140, § 3, 1972.)

15.154.040 Future conveyances and deeds of trust.

Effective July 21, 1972:

A. No person shall become the owner of record of real estate situated in the City;

B. Nor shall any person become the trustee of record or the mortgagee of record under any deed of trust upon real estate situated in the City;

C. Nor shall any person become the grantor of any conveyance of title to or any deed of trust upon any real estate to another person as owner of record, trustee of record or mortgagee of record, unless:

1. The owner of record, trustee of record or mortgagee of record is also the beneficial owner, trustee or mortgagee, respectively; or

2. The owner of record, trustee of record or mortgagee of record is such by reason of his capacity as: a. Executor or administrator of the estate of a deceased person; or b. Guardian of the estate of a minor or an incompetent person; or

3. The owner of record, trustee of record or mortgagee of record is such by reason of his capacity as trustee of a bona fide trust; or

4. The person, whether he be the owner of record, trustee of record, mortgagee of record, or grantor, files with the Fire Marshal a registration statement as specified in this chapter within ten days of the filing for record with the Recorder of Deeds of the conveyance or deed of trust in question. (1994 C., § 15.154.040; Ord. No. 56140, § 4, 1972.)

15.154.050 Former conveyances and deeds of trust.

Effective October 19, 1972:

A. No person shall be the owner of record of real estate situated in the City;

B. Nor shall any person be a trustee of record or the mortgagee of record under any unreleased deed of trust upon real estate situated in the City of St. Louis, unless:

1. The owner of record, trustee of record or mortgagee of record is also the beneficial owner, trustee or mortgagee, respectively; or

2. The owner of record, trustee of record or mortgagee of record is such by reason of his capacity: a. Executor or administrator of the estate of a deceased person; or b. Guardian of the estate of a minor or an incompetent person; or

3. The owner of record, trustee of record or mortgagee of record is such by reason of his capacity as trustee of a bona fide trust; or

4. The person, whether he be the owner of record, trustee of record, or mortgagee of record, has filed with the Fire Marshal of the City of St. Louis a registration statement as hereinafter specified. (1994 C., § 15.154.050; Ord. No. 56140, § 5, 1972.)

15.154.060 Additional requirements for all conveyances and deeds of trust.

Effective May 1, 1973:

A. No person shall be or become the beneficial owner of real estate situated in the City;

B. Nor shall any person be or become the beneficial trustee or the beneficial mortgagee under any unreleased deed of trust upon real estate situated in the City, unless:

1. The beneficial owner, beneficial trustee or beneficial mortgagee is also the owner of record, trustee of record, or mortgagee of record, respectively; or

2. The beneficial owner, beneficial trustee or beneficial mortgagee is such: a. By reason of his capacity as a devisee or heir of the estate of a deceased person; or b. By reason of his being a minor or an incompetent person; or

3. The beneficial owner, beneficial trustee or beneficial mortgagee is such by reason of his capacity as beneficiary of a bona fide trust; or

4. The person, whether he be the beneficial owner, beneficial trustee or beneficial mortgagee, files with the Fire Marshal a registration statement as specified in this chapter on or before the later of the following two dates: a. May 1, 1973 or b. Ten days after the filing for record with the Recorder of Deeds of the conveyance or deed of trust whereby or as a result of which the person is or becomes the beneficial owner, beneficial trustee or beneficial mortgagee. (1994 C., § 15.154.060; Ord. No. 56437, § 1, 1973; Ord. No. 56140, § 5A, 1972.)

15.154.070 Amended registration statements.

Every person who files a registration statement or an amended registration statement shall, within ten days after there is, to his knowledge, any change in the matters therein set forth, file with the Fire Marshal an amended registration statement reflecting the changes. (1994 C., § 15.154.070; Ord. No. 56140, § 6, 1962.)

15.154.080 Penalty for violation.

Any person guilty of a violation of Sections 15.154.040—15.154.070, or any person who makes a false statement in a registration statement filed under this chapter, shall, upon conviction, be sentenced to a fine of not more than five hundred dollars or to imprisonment for not more than ninety days or to both fine and imprisonment. (1994 C., § 15.154.080; Ord. No. 56437, § 2, 1973; Ord. No. 56140, § 7, 1972.)

15.154.090 Immunity from prosecution.

No person shall refuse to testify in a prosecution under this straw party registration and control law on the ground of self-incrimination, if the City Counselor has first granted the person immunity from prosecution under the law as to the event or transaction which is the subject of the prosecution. The City Counselor is authorized to grant immunity on behalf of the City if, in his opinion, the testimony of the person to whom the immunity is granted is important or necessary in a prosecution under the law. In prosecuting persons and in granting immunity under the law, the City Counselor shall, wherever feasible, give preference to prosecuting beneficial owners, trustees and mortgagees and give preference to granting immunity to record owners, trustees and mortgagees. (1994 C., § 15.154.090; Ord. No. 56437, § 3, 1973; Ord. No. 56140, § 7A, 1972.)

15.154.100 Registration statement—Contents.

A registration statement under this chapter shall be filed on a form prescribed by the Fire Marshal, shall be signed by the person filing it following a statement providing generally that the facts set forth therein are true to the best of the knowledge and belief of the person, shall contain an acknowledgement of the signature and statement, and shall contain the following:

A. The names, business addresses and telephone numbers, and home addresses and telephone numbers of all persons who are parties to the conveyance or deed of trust;

B. The names, business addresses and telephone numbers, and home addresses and telephone numbers of all persons who are not parties to the conveyance or deed of trust, but who are beneficial owner, trustee or mortgagee, with a statement of which status each person occupies;

C. The date of the conveyance or deed of trust, a statement as to the type of instrument (e.g., warranty deed, quitclaim deed, deed of trust), the date the instrument was recorded, the book and page numbers of the Recorder of Deeds records in which the instrument was recorded (or, if the book and page numbers are not then available, then the Recorder of Deeds daily number for the instrument), the street address of the property in question, and the legal description of the property in question;

D. The names and addresses of all insurance companies which have issued fire insurance policies upon the property, and the date and amount of each policy;

E. If any person named in a registration statement is a corporation, the names, business addresses and telephone numbers, and home addresses and telephone numbers of all of its directors and officers shall be included; similar information shall be included for partnerships, trusts, joint ventures and other entities. Any person filing a registration statement may deny therein that a registration statement is required to be filed or that the person is required to file a registration statement. The filing of a registration statement by one person shall not relieve other persons of their obligations under this chapter to file a registration statement. (1994 C., § 15.154.100; Ord. No. 56140, § 8, 1972.)

15.154.110 Registration statement—Indexing and confidentiality.

A. The Fire Marshal shall separately index each registration statement:

1. Alphabetically, according to the name of each person contained in the registration statement; and

2. Alphabetically, according to the street address of the property in question.

B. The Fire Marshal shall keep confidential all registration statements and shall make them available for inspection only by:

1. A lawfully constituted authority engaged in an arson investigation; or

2. The Building Commissioner or the Health Commissioner upon his certification that he has been unable to obtain the abatement on a stated parcel of property of a violation of this Code;

3. Fire insurance companies. (1994 C., § 15.154.110; Ord. No. 56140, § 9, 1972.)

15.154.120 Liability of beneficial owners.

Any person who is the beneficial owner of any real estate situated in the City may be proceeded against, prosecuted and convicted for any violation on the real estate of this Code, unless the status of the person as beneficial owner arises under a trust whereby the person has no power to control or direct the management, investment or distribution of trust assets or trust income. Any grantor of trust assets who has attributes which prevent the trust from being a bona fide trust shall be a beneficial owner and shall be subject to being proceeded against, prosecuted and convicted pursuant to this section. (1994 C., § 15.154.120; Ord. No. 56140, § 10, 1972.)

15.154.130 Effect on titles and instruments.

Failure to comply with any requirement of this chapter shall have no effect upon title to real estate or the validity of any instrument. (1994 C., § 15.154.130; Ord. No. 56140, § 11, 1972.)

Chapter 15.155

KITES

Sections:

15.155.010 Attachment to electrical current prohibited.

15.155.010 Attachment to electrical current prohibited.

No person, firm or corporation shall own, possess, use, distribute or sell any kite, appendage thereto or string attached to said kite or appendage either or all of which can conduct electrical current. (1994 C., § 15.155.010; Ord. No. 57167, § 1, 1976.)

Chapter 15.156

YARD SALES

Sections:

15.156.010 Prohibited—Front yard defined.
15.156.020 Prohibited—Display—Festival permit for sidewalk use.
15.156.030 Penalty for violation.

15.156.010 Prohibited—Front yard defined.

A. It shall be unlawful to conduct any sale at retail in the front yard of any residentially zoned property, as the term "front yard" is herein defined, which said sale is known as a yard sale, garage sale or lawn sale.

B. "Front yard" means a yard measured across the width of the entire lot and situated between the front lot line and the nearest portion of the main building other than steps, unenclosed balconies or unenclosed porches. (1994 C., § 15.156.010; Ord. No. 59755, § 1, 1986.)

15.156.020 Prohibited—Display—Festival permit for sidewalk use.

A. It shall be unlawful to display, show or otherwise exhibit any goods, chattels or other personalty to be sold at said lawn sale, yard sale, garage sale or any retail sale conducted at a residentially zoned structure, in the front yard of said residence as herein defined.

B. No person or group of persons shall be permitted to conduct a yard sale, garage sale or lawn sale, or activities of substantially the same character, being activity as defined in this chapter, unless they have first obtained a festival permit as provided by Chapter 20.46 to use the public sidewalk or streets the area on which said activity is to be conducted. (1994 C., § 15.156.020; Ord. No. 59755, § 2, 1986.)

15.156.030 Penalty for violation.

Any person found guilty of violating the provisions of this chapter shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days or both such fine and imprisonment. (1994 C., § 15.156.030; Ord. No. 59755, § 3, 1986.)

Chapter 15.157

RESIDENTIAL REAL ESTATE OPEN HOUSE SIGNS

Sections:

15.157.010 Definitions.
15.157.020 Residential real estate "open house" signs on public streets.
15.157.030 When displayed.
15.157.040 Identification required.
15.157.050 Violation of chapter.

15.157.010 Definitions.

For purposes of this chapter the following definition shall apply:

"Residential real estate open house sign" shall mean a temporary sign that solely indicates that residential property, or portion thereof, is for sale, lease, or rent and provides directions to the property and "open house" information. (1994 C., § 15.157.010; Ord. No. 66993, § 1, 2006.)

15.157.020 Residential real estate "open house" signs on public streets.

A. Residential real estate open house signs may be placed on public rights-of-way in accordance with the restrictions on signs set forth in this section.

B. All residential real estate open house signs are subject to the following conditions:

1. *Size.* The total face area of the signs shall not exceed three (3) square feet in size.

2. *Height.* The vertical distance measured from ground level to the highest point of such sign or sign structure or other support shall not exceed three (3) feet.

3. *Local Address.* Signs shall only advertise a residence in the City of St. Louis.

4. *Limit.* No more than six (6) signs per property for sale, lease or rent shall be posted within the public rights-of-way.

5. *Type.* Signs shall be mounted either on stakes placed in the ground or with an A-frame support of sufficient weight so that the sign remains upright when mounted. Signs and any supporting structures shall be maintained in good condition at all times and shall be constructed out of quality materials normally used in professional signage.

6. *Location.* No sign shall be placed, used or maintained:

a. On trees, traffic signs or utility poles, nor be placed in such a manner as to obstruct the view of any official public sign;

b. On right-of-way if the location obstructs the safe and convenient use by the public of any street, sidewalk, or curbside parkway area;

c. In any roadway area or center median area;

d. At any location whereby the clear space for the passageway of pedestrians is reduced to a width that violates the Americans with Disabilities Act;

e. On streets undergoing construction, nor on streets with special events; or

f. Within five (5) feet of any of the following: driveway, traffic signal, traffic sign, designated bus stop sign, bus bench or any other bench on the sidewalk. (1994 C., § 15.157.020; Ord. No. 66993, § 2, 2006.)

15.157.030 When displayed.

Residential real estate open house signs shall only be displayed during the "open house" and shall not be displayed earlier than 8 a.m. and must be removed no later than dusk or 6 p.m., whichever is earlier. (1994 C., § 15.157.030; Ord. No. 66993, § 3, 2006.)

15.157.040 Identification required.

Every person who places or maintains a residential real estate open house sign on the streets of the City of St. Louis shall have his or her name, address, and telephone number affixed to the sign. (1994 C., § 15.157.040; Ord. No. 66993, § 4, 2006.)

15.157.050 Violation of chapter.

Any sign installed, placed or deposited in violation of the provisions of this chapter may be summarily removed by the City. (1994 C., § 15.157.050; Ord. No. 66993, § 5, 2006.)

Chapter 15.158

CONDUCT AT STRIKE

Sections:

15.158.010 Policy declaration.
15.158.020 Definitions.
15.158.030 Unlawful conduct.
15.158.040 Penalty for violation.

15.158.010 Policy declaration.

It shall be the policy of the City to protect the safety, convenience, and peaceful enjoyment of the residents, visitors, and tourists of the City by having citizens knowledgeable about their rights, statutes and circumstances of their place of work or patronage. (1994 C., § 15.158.010; Ord. No. 62200, § 1, 1991.)

15.158.020 Definitions.

When used in this chapter, the following terms shall have the following meanings:

A. "Employee" means any person who performs services for wages or salary under a contract of employment, expressed or implied, for an employer.

B. "Employer" means any individual, partnership, or corporation who employs any employee to perform services for a wage or salary and includes any agent of any employer acting directly or indirectly.

C. "Employment agency" means any person, organization or agency, public or private, that solicits or refers persons to employment positions.

D. "Labor organization" means any organization of any kind or any agency or employee representation committee or plan in which employees participate and which exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours of employment or conditions of work.

E. "Lockout" means a refusal by an employer to permit his employees to work as a result of a dispute with such employees that affects wages, hours, and other terms and conditions of employment of said

employees; provided, however, that a lockout shall not include a termination of employment for reasons deemed proper under Missouri State and federal law.

F. "Replacement employee" means any individual hired for the purposes of replacing either permanently or temporarily an employee who is currently engaged in a lawful strike or who is locked out by his or her employer.

G. "Strike" means any concerted act of the employees in a lawful refusal of the employees to perform work or services for the employer, provided such acts are not recognized as unlawful under Missouri State and federal law, and if the employees are represented by a labor organization, that the said labor organization shall have approved or sanctioned the act.

H. "Strikebreaker" means any person who customarily and repeatedly offers himself or herself for employment for the duration of a strike or lockout in the place of an employee involved in a strike or lockout. (1994 C., § 15.158.020; Ord. No. 62200, § 2, 1991.)

15.158.030 Unlawful conduct.

A. It shall be unlawful for any employer to solicit any strike replacement employee for hire or employ or pay wages to any strike replacement employee unless all the employment solicitations or advertisements clearly disclose that the jobs available are for strike replacement employment.

If an employer solicits any strike replacement employee through an employment agency or other agent, and fails to notify such employment agency or agent in writing to advise the prospective employees that it is soliciting for strike replacement employment, the employer shall be liable under this chapter for any failure by the employment agency or other agent to disclose that the jobs available are for strike replacement employment.

B. It shall be unlawful for any employer to hire or pay wages to any person hired as a strike replacement employee unless that person first signs an affidavit disclosing the fact that he or she realizes that he or she is being hired as a strike replacement. Such affidavit must be filed by the employer with the Director of Public Safety within forty-eight (48) hours of such employment of a strike replacement employee. (1994 C., § 15.158.030; Ord. No. 62200, § 3, 1991.)

15.158.040 Penalty for violation.

Each violation as to each employee hired under Section 15.158.030.B, the unlawful conduct section of this chapter by an employer shall be construed as a separate and succeeding offense. Each day or part thereof of violation by an employer under Section 15.158.030A, the unlawful conduct section of this chapter, whether such violation be continuous or intermittent, shall be construed as a separate and succeeding offense. Each separate violation by an employer under Section 15.158.030.A or B shall carry a penalty of five hundred ($500.00) dollars. (1994 C., § 15.158.040; Ord. No. 62200, § 4, 1991.)

Chapter 15.159

SCRAP METAL

Editor's Note:

Ord. No. 69013, adopted Nov. 9, 2011, repealed Ch. 15.159 and enacted a new chapter as set out herein. The former Ch. 15.159, §§ 15.159.010—15.159.050, pertained to similar subject matter and derived from Ord. No. 67242, §§ 1—5, 2007.

Sections:

15.159.010	**Definitions.**
15.159.020	**Hours of operation.**
15.159.030	**Electronic recordkeeping requirements.**
15.159.040	**Restricted purchases and exceptions.**
15.159.050	**Copper property peddler's license.**
15.159.060	**Purchases of certain scrap metal—Requirements.**
15.159.070	**Hold notice.**
15.159.080	**Penalty for knowing and willful violation by scrap metal dealer.**
15.159.090	**Penalty for seller of stolen metals.**
15.159.100	**Use of scrap theft alert system.**

15.159.010 Definitions.

As used in this chapter, the following terms shall have the meaning indicated in this section:

The term "catalytic converter" shall mean a device designed for use in a vehicle for purposes of chemically converting harmful exhaust gases, produced by the internal combustion engine, into harmless carbon dioxide and water vapor.

The term "copper property" shall mean any insulated copper wire, copper tubing, copper guttering and downspouts, or any item composed completely of copper.

The term "copper property peddler" shall mean any person who sells or attempts to sell copper property and who is not either a licensed or certified tradesperson (i.e., licensed plumber or electrician).

The term "ferrous metals" shall mean metals which contain iron and are magnetic.

The term "HVAC component" shall mean any air conditioner evaporator coil or condenser used in connection with a residential, commercial or industrial building.

The term "nonferrous metals" shall mean metals which do not contain significant amounts of iron, and are not magnetic, such as aluminum, brass, lead, zinc and copper.

The term "scrap metal dealer" shall mean any entity (person, firm, company, partnership, association, or corporation) located in the City of St. Louis who purchases products containing ferrous or nonferrous metals for recycling or resale.

The term "vehicle repair business" shall mean any commercial facility engaged in the repair or replacement of car, truck and van, motorcycle or other motorized mechanical and exhaust components, whether as a primary or ancillary activity. (1994 C., § 15.159.010; Ord. No. 69013, § 4, 11-9-2011.)

15.159.020 Hours of operation.

Hours of retail sales operation for scrap metal dealers may be no earlier than 6:00 a.m. and no later than 7:00 p.m. daily. (1994 C., § 15.159.020; Ord. No. 69013, § 5, 11-9-2011.)

15.159.030 Electronic recordkeeping requirements.

A. By no later than July 1, 2012, every scrap metal dealer shall install and maintain a retrievable electronic database containing a consecutively numbered record of each and every purchase of ferrous and non-ferrous metals.

B. Any person selling ferrous or non-ferrous metal to a scrap metal dealer shall present a valid United States driver's license and/or a picture identification from a state or federal issuing agency (i.e., state-issued identification or passport) to the scrap metal dealer.

C. Any person selling copper property who holds a valid business license or copper property peddler's license shall present a copy of such license to the scrap metal dealer.

D. Scrap metal dealers shall, at the time of making the purchase, enter into the electronic database the following information:

1. Name, date of birth, and address of the seller as indicated on the state or federal issued driver's license and/or picture identification.

2. Date of the scrap metal purchase.

3. Driver's license number and/or reference number on the picture identification from a state or federal issuing agency (i.e., state-issued identification or passport) capable of identifying the seller.

4. Any business license number or the copper property peddler's license (including the name of the issuing municipality or county).

5. Amount paid therefor.

6. Kind of metals purchased.

7. Number of pounds of each kind.

8. License plate number of the vehicle delivering the material.

The information entered into the electronic database shall be completed in full without any missing data or information as prescribed in this section.

E. The electronic database shall at all times be open for inspection by police or other law enforcement officers, during normal business hours without warrant or subpoena.

F. A transaction receipt shall be issued and consist of the same information required under Subsection D of this section and shall include the following statement: "By accepting payment from [Insert name of scrap metal dealer], seller represents and warrants that the material documented by this receipt is owned by or was lawfully obtained and the seller has the legal right to sell the material to [insert name of scrap metal dealer]." If the seller provides any documentation indicating that the person is in lawful possession of the scrap metal, or was otherwise lawfully acquired, including, without limitation, a bill of sale or receipt, the scrap metal dealer shall photocopy such documentation and maintain it with the transaction information otherwise required by this section.

G. All records described in this section shall be maintained for three (3) years from the date of sale.

H. A scrap metal dealer or the agent, employee, or representative of a scrap metal dealer shall not disclose personal information concerning a customer obtained under this chapter without the consent of the customer

unless the disclosure is made in response to a request from a law enforcement agency. A scrap metal dealer shall implement reasonable safeguards.

1. To protect the security of the personal information required under Subsection D of this section; and

2. To prevent unauthorized access to or disclosure of that information.

I. A scrap metal dealer shall not be liable to any customer for a disclosure of personal information if the scrap metal recycler has met the requirements set forth in Subsection H. (1994 C., § 15.159.030; Ord. No. 69013, § 6, 11-9-2011.)

15.159.040 Restricted purchases and exceptions.

A. No person shall knowingly sell or attempt to sell to a scrap metal dealer and no scrap metal dealer shall knowingly and willfully purchase the following types of scrap metal:

1. Guardrails, manhole covers, certain cables used only in high voltage transmission lines, historical markers and cemetery plaques, traffic signs, refuse containers or refuse container components, unless accompanied by proof of ownership or authorization to sell the materials on behalf of the owner.

2. New materials, such as those used in construction, or equipment or tools used by contractors unless accompanied by proof of ownership or authorization to sell the materials on behalf of the owner.

3. Materials which are clearly marked as property belonging to someone other than the seller, unless accompanied by written authorization from the business or property owner evidencing the seller has the legal right to sell the material.

4. HVAC components unless accompanied by written authorization from a licensed HVAC business evidencing that the components were legally removed and the seller has the legal right to sell the material.

5. Catalytic converters unless purchased from a vehicle repair business.

B. The scrap metal dealer shall make a photocopy of any documentation provided pursuant to this section, retain the copy as part of the transaction record, and maintain such photocopy for a period of three (3) years following the transaction. All photocopies shall be made available for inspection upon request by the police or other law enforcement officers.

C. No scrap metal dealer shall purchase or otherwise receive from a person under the age of eighteen (18) any ferrous or non-ferrous metal, other than aluminum cans.

D. This section shall not apply to any transaction for which the seller has an existing business relationship with the scrap metal dealer and is known to the scrap metal dealer making the purchase to be an established business or political subdivision that operates a business with a fixed location that can be reasonably expected to generate regulated scrap metal and can be reasonably identified as such a business. (1994 C., § 15.159.040; Ord. No. 69013, § 7, 11-9-2011.)

15.159.050 Copper property peddler's license.

A. No person shall engage in the business of a copper property peddler without first obtaining a license from the License Collector and complying with the provisions of this section.

B. Every copper property peddler shall pay a license fee of forty-five dollars ($45.00) per year. The license shall expire June 30 of each year. Each license shall bear a separate number, the name and address of the licensee and telephone number of the licensee. The license shall be available only to the person in whose name it is issued, and shall not be used by any person other than the original licensee. Any licensee who shall permit his license to be used by any other person, and any other person who shall use a license granted to another person, shall each be deemed guilty of a violation of this chapter.

C. Application for licenses under this section shall be made in writing to the License Collector and shall state the name, age, description and address of the applicant. The application shall include a sworn statement setting forth each and every conviction of the applicant for violations of federal, state or City laws, statutes or ordinances. In addition, the applicant shall, at his or her expense, obtain a complete copy of the person's police record as indicated by the records of the City Police Department, and submit such record as part of the application. The License Collector shall not grant a license to any person who has been convicted of burglary, robbery, stealing, theft or possession or receiving stolen goods in the last twenty-four (24) months prior to the date of the application.

D. The License Collector of St. Louis shall have the power and authority to revoke any license issued under this section for any willful violation by a copper

property peddler of any of the provisions or conditions contained herein; provided, the license shall be revoked only after the licensee shall have been notified in writing at his place of business of the violations complained of and shall have been afforded a reasonable opportunity to have a hearing thereon before the License Collector.

E. Notwithstanding the requirements set forth in this section, the City shall recognize a copper property peddler's license issued by a state or local government so long as such license is issued pursuant to laws or ordinances which (i) are no less stringent than this chapter, (ii) require criminal background checks, (iii) prohibit licenses issued to any person who has been convicted of burglary, robbery, stealing, theft, or possession or receiving stolen goods in the last twenty-four (24) months prior to the date of the application, and (iv) similarly recognize copper property peddler's licenses issued by the City of St. Louis. (1994 C., § 15.159.050; Ord. No. 69013, § 8, 11-9-2011.)

15.159.060 Purchases of certain scrap metal—Requirements.

A. A scrap metal dealer shall pay for any copper property or HVAC component as follows:

1. A scrap metal dealer may not pay cash for copper property or HVAC component unless the seller presents a valid trade license or trade certificate.

2. Payment to any seller of copper property or HVAC component who presents valid copper property peddler's license shall be by check. Checks shall be written to the licensee or certified tradesperson and may be delivered to the seller at the time of the sale.

3. Payment to any seller of copper property or HVAC component who does not present or have on file a valid business license, valid trade license or certificate or valid copper property peddler's license shall be by check. Checks shall be payable only to the person whose name was recorded as delivering the copper property or HVAC component to the scrap metal dealer; provided, however, that if such person is delivering the copper property or HVAC component on behalf of a governmental entity or a nonprofit or for-profit business entity, the check may be payable to such entity. All checks issued to a seller of copper property or HVAC component who does not present or have on file a valid business license, valid trade license or valid copper property peddler's license shall be mailed via U.S. mail to the address provided on the driver's license or picture identification provided by the seller.

4. Checks may not be converted to cash by a scrap metal dealer or by any related entity.

B. This section shall not apply to any transaction for which the seller holds a business license issued by the City of St. Louis or other municipality or county and has an existing business relationship with the scrap metal dealer and is known to the scrap metal dealer making the purchase to be an established business or political subdivision that operates a business with a fixed location that can be reasonably expected to generate regulated scrap metal and can be reasonably identified as such a business. (1994 C., § 15.159.060; Ord. No. 69013, § 9, 11-9-2011.)

15.159.070 Hold notice.

A. If a scrap metal dealer has actual knowledge that copper property or HVAC component in its possession has been stolen the dealer shall notify the Police Department via 911 and provide any information in its possession relative to the seller or the sale transaction.

B. Following notice from the scrap metal dealer or if the Police Department has reasonable suspicion that the scrap dealer is in possession of stolen property, the Police Department may issue to the scrap metal dealer a written notice placing a ten (10) day hold order on the property. (1994 C., § 15.159.070; Ord. No. 69013, § 10, 11-9-2011.)

15.159.080 Penalty for knowing and willful violation by scrap metal dealer.

A. Any scrap metal dealer who shall knowingly and willfully conduct business in violation of any of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00) per violation, or a term of imprisonment of not more than ninety (90) days or by both a fine and imprisonment. Every transaction conducted by a scrap metal dealer in violation of the provisions of this chapter shall be deemed a separate violation.

B. In addition to the penalties described in this section, the City may revoke any occupancy permit issued for the business premises of the scrap metal dealer who knowingly and willfully violates this chapter.

C. Nothing in this section shall be construed to preclude a person violating this chapter from also being

prosecuted for any applicable criminal offense. (1994 C., § 15.159.080; Ord. No. 69013, § 11, 11-9-2011.)

15.159.090 Penalty for seller of stolen metals.

A. It is unlawful for any person to knowingly present for sale to a scrap metal dealer stolen ferrous or non-ferrous metal, including, but not limited to, copper property or HVAC components. Any person who knowingly presents for sale stolen ferrous or non-ferrous metal shall be guilty of an offense for each item of scrap metal, and shall, upon conviction, be subject to a fine of not less than five hundred dollars ($500.00) or by imprisonment for a period not to exceed ninety (90) days or by both fine and imprisonment.

B. It is unlawful for a person to willfully and maliciously cut, mutilate, deface, or otherwise injure any personal or real property owned by a third party, including any fixtures or improvements, for the purpose of obtaining ferrous or non-ferrous metals in any amount. Any person who willfully and maliciously cuts, mutilate, defaces, or otherwise injures any personal or real property owned by a third party for the purpose of obtaining ferrous or non-ferrous metal, shall be guilty of an offense for each item of scrap metal derived from such actions, and shall, upon conviction, be subject to fine of not less than five hundred dollars ($500.00) or by imprisonment for a period not to exceed ninety (90) days or by both fine and imprisonment.

C. In addition to the penalties described in this section, the City shall revoke any copper property peddler's license of a person who knowingly and willfully violates this chapter. (1994 C., § 15.159.090; Ord. No. 69013, § 12, 11-9-2011.)

15.159.100 Use of scrap theft alert system.

A. A scrap metal dealer shall register with or subscribe to the alert system established by the Institute of Scrap Recycling Industries, Inc., referred to as the ISRI Scrap Theft Alert system and maintain that registration or subscription. The ISRI Scrap Theft Alert system is an internet-based alert system available to dealers, law enforcement agencies, and the general public that lists and tracks, at a minimum, thefts of non-ferrous metal and articles containing non-ferrous metals.

B. The Chief of Police for the City of St. Louis shall designate the appropriate personnel within the department, which shall consist of not less than two officers, who shall register with or subscribe to, and maintain that registration or subscription with the ISRI Scrap Theft Alert system. The designated officers shall be directed by the Chief of Police to monitor and report scrap metal thefts to the system, as they are reported to the department in order to assist scrap metal dealers with identifying stolen materials that may be presented for subsequent sale. (1994 C., § 15.159.100; Ord. No. 69013, § 13, 11-9-2011.)

Chapter 15.160

BUILDING SERVICE EMPLOYEES

Sections:

15.160.010 Definitions.

15.160.020 Protection for building service employees.

15.160.030 Penalty.

15.160.010 Definitions.

For purposes of this chapter, the following terms shall apply:

"Building service" means work performed in connection with the care or maintenance of an existing building and includes, but is not limited to, work performed by a watchman, security officer, door staff, building cleaner, maintenance technician, handyman, janitor, elevator operator, window cleaner, building engineer and groundskeeper.

"Building service contract" means a contract let to any covered employer for the furnishing of building services and includes any subcontract for such services.

"Building service contractor" means any person who enters into a building service contract.

"Building service employee" means any person employed as a building service employee by a covered employer who has been regularly assigned to a building on a full- or part-time basis for at least 90 days immediately preceding any transition in employment subject to this section except for (i) persons who are managerial, supervisory, or confidential employees, provided that this exemption shall not apply to building engineers for existing properties, (ii) persons earning in excess of $25.00 per hour from a covered employer, and (iii) persons regularly scheduled to work fewer than 6 hours per week at a building.

"City of St. Louis" means any administration, department, division, bureau, board or commission, or a

corporation, institution, or agency of government, the expenses of which are paid in whole or in part from the City treasury.

"Covered employer" means any person who owns or manages real property, either on its own behalf or for another person, or any person who contracts or subcontracts with an owner or manager of real property within the City of St. Louis for real estate, including, but not limited to, housing cooperatives, condominium associations, building managing agents, and any building service contractor; provided, however, that the requirements of this chapter shall not apply to (i) residential buildings under 50 units, (ii) commercial office, institutional, or retail buildings of less than 70,000 square feet, (iii) any building in which the City of St. Louis or any governmental entity, the head or majority of members of which are appointed by one or more officers of the City of St. Louis, occupies 50% or more of the rentable square footage, or (iv) any building that is owned or operated by a hospital or hospital affiliate as defined in the Hospital Licensing Ordinance.

"Person" means any individual, proprietorship, partnership, joint venture, corporation, limited liability company, trust, association, or other entity that may employ persons or enter into service contracts, but shall not include the City of St. Louis, the federal government or any other entity, or any individual or entity managing real property for a governmental entity.

"Successor employer" means a covered employer that (i) has been awarded a building service contract to provide, in whole or in part, building services that are substantially similar to those provided under a service contract that has recently been terminated, or (ii) has purchased or acquired control of property in which building service employees were employed. (1994 C., § 15.160.010; Ord. No. 67423, § 2, 2007.)

15.160.020 Protection for building service employees.

A. No less than 15 calendar days before terminating any building service contract, any covered employer shall request the terminated contractor to provide the successor employer and any collective bargaining representative of any of the affected employees a full and accurate list containing the name, address, date of hire, and employment occupation classification of each building service employee employed on the notice date at the site or sites covered by the terminated contract.

B. No less than 15 calendar days before transferring a controlling interest in any covered building in which building service employees are employed, any covered employer shall provide to the successor employer and any collective bargaining representative of any of the affected employees a full and accurate list containing the name, address, date of hire, and employment occupation classification of each building service employee currently employed at the site or sites covered by the transfer of controlling interest.

C. Any covered employer shall provide to the successor employer and any collective bargaining representative of any of the affected employees a full and accurate list containing the name, address, date of hire, and employment occupation classification of each building service employee currently employed at the site or sites covered by the terminated building service contract no more than 7 calendar days after notice that its building service contract has been terminated.

D. When providing the notice required under this section, each covered employer shall ensure that a notice to building service employees is posted setting forth the rights provided under this section and which includes a copy of the list provided under the proceeding subsections, and that such notice is also provided to the employees' collective bargaining representative, if any. The notice and list shall be posted in the same location and manner that other statutorily required notices to employees are posted at the affected site or sites.

E. A successor employer shall retain for a 90-day transition employment period at the affected site or sites those building service employees of the terminated building service contractor and its subcontractors, or other covered employer, employed at the site or sites covered by the terminated building service contract or owned or operated by the former covered employer.

F. If at any time the successor employer determines that fewer building service employees are required to perform building services at the affected building than had been performing such services under the former employer, the successor employer shall retain the predecessor building service employees by seniority within job classification; provided that during such a 90-day transition period, the successor employer shall maintain a preferential hiring list of those building service employees not retained at the building who shall be given a right of first refusal to any jobs within their classification that becomes available during that period.

G. Except as provided in Subsection F of this section, during such 90-day period, the successor contractor shall not discharge without cause an employee retained pursuant to this section.

H. At the end of the 90-day transition period, the successor employer shall perform a written performance evaluation for each employee retained pursuant to this section. If the employee's performance during such 90-day period is satisfactory, the successor contractor shall offer the employee continued employment under the terms and conditions established by the successor employer or as required by law.

I. Nothing in this chapter shall restrict an existing or successor employer from obtaining a background check on an employee as may be required by a federal, state or local governmental agency or from requiring that an employee undergo appropriate testing and investigation consistent with the existing or successor employer's personnel policies. (1994 C., § 15.160.020; Ord. No. 67423, § 3, 2007.)

15.160.030 Penalty.

Any person found to be in violation of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety days (90) or both a fine and imprisonment. (1994 C., § 15.160.030; Ord. No. 67423, § 4, 2007.)

Chapter 15.165

CYBER HARASSMENT

Sections:

15.165.010 Definitions.
15.165.020 The offense of cyber harassment.
15.165.030 Penalty for violation.

15.165.010 Definitions.

For the purpose of this chapter the following words or phrases shall have the meaning given herein:

A. "Course of conduct" means a pattern of conduct composed of a series of acts, which may include electronic or other communications, over a period of time, however short, evidencing a continuity of purpose. Constitutionally protected activity is not included within the meaning of "course of conduct."

B. "Electronic communication" means the origination, emission, dissemination, transmission, or reception of data, writings, images, signals, sounds, or other intelligence or equivalence of intelligence of any nature over any communications system by any method, including, but not limited to, a fiber optic, radio, electronic, magnetic, optical, digital, analog method, electronic mail, internet-based communications, pager service or electronic text messaging.

C. "Electronic communications device" means any instrument, equipment, machine, or other device that facilitates telecommunication, including, but not limited to, a computer, computer chip, computer circuit, scanner, telephone, cellular telephone, pager, personal communications device, transponder, receiver, radio, or device that enables the use of a modem.

D. "Family or household member" means spouses, former spouses, parents, children, stepchildren and other persons related by blood or by present or prior marriage, persons who share or formerly shared a common dwelling, persons who have or allegedly share a blood relationship through a child, persons who have or have had a dating or engagement relationship, and persons with disabilities and their personal assistants.

E. "Harass" means to engage in a course of conduct that serves no legitimate purpose and would cause a reasonable person to suffer substantial emotional distress, and shall actually cause substantial emotional distress, or, when the course of conduct consists of contact by a person over age eighteen with a person under the age of eighteen that would cause a reasonable parent to fear for the well-being of their minor child who is the target of the contact. (1994 C., § 15.165.010; Ord. No. 67800, § 1, 2007.)

15.165.020 The offense of cyber harassment.

A. A person commits the offense of cyber harassment if he or she, with intent to harass, initiates the transmission of an electronic communication, or with knowledge of a person's intent to harass, knowingly permits an electronic communication to be transmitted from an electronic communication device under the person's control to such other person or a third party.

B. No person shall make or cause to be made an electronic communication, or permit an electronic communication to be made from an electronic communications device under the person's control, with the intent to harass either by the direct action of the person initiating the communication or through the actions of a third party, which third party actions are instigated, initiated, prompted or brought about by the person's communication.

C. Any offense committed under this section may be deemed to have been committed either at the place from which the communication was made or at the place where the communication was received. (1994 C., § 15.165.020; Ord. No. 67800, § 2, 2007.)

15.165.030 Penalty for violation.

Any person who violates the provisions of this chapter shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment not more than ninety (90) days or both a fine and term of imprisonment. (1994 C., § 15.165.030; Ord. No. 67800, § 3, 2007.)

Chapter 15.170

MINIMUM WAGE

Sections:

15.170.010 Definitions.
15.170.020 Wage requirements.
15.170.030 Other prohibited conduct.
15.170.040 Notice and posting.
15.170.050 Enforcement.
15.170.060 Collective bargaining.

15.170.010 Definitions.

The terms used in this chapter are defined as follows, and have the same meaning whether or not the terms are capitalized within this chapter:

A. "Bonuses" means non-discretionary payments in addition to hourly, salary, commission, or piece-rate payments paid under an agreement between an employer and an employee.

B. "Commission" means a sum of money paid to an employee upon completion of a task, usually selling a certain amount of goods or services.

C. "Effective date" means the date on which this chapter becomes effective under the laws of the City of St. Louis. Each and every requirement of this chapter shall be deemed in effect as of the date it is signed into law by the Mayor of the City of St. Louis, including any increases in the minimum wage rate that begin after that date, notwithstanding that any such increase begins after that date.

D. "Employ" means to suffer or permit to work.

E. "Employer" means any individual, partnership, association, corporation, business trust, or any person or group of persons acting directly or indirectly in the interest of an employer in relation to an employee, and shall include the City of St. Louis and its departments, divisions, and agencies, but shall not include any other governmental entity which includes, for purposes of this chapter, any other unit of local government, the state government, and the government of the United States, except that the term "employer" shall not include any individual, partnership, association, corporation, entity, business trust, or any person or group of persons:

1. Whose annual gross revenues made or business done is less than five hundred thousand dollars ($500,000.00), or if the business has been in operation for less than one year whose annual gross revenues made or business done is reasonably projected to be less than five hundred thousand dollars ($500,000.00); or

2. Which has employed no more than fifteen (15) regardless of location or status as exempt under this chapter, during each calendar week within the current calendar year and the previous calendar year, whether on a part-time, full-time or temporary basis, and shall include contingent and contracted workers and individuals working through a temporary service, staffing or employment agency or similar entity either directly, indirectly, or through affiliates. If the employer is a franchise within the meaning of RSMo 407.400(1), all employees of franchisees associated with the same franchisor or a network of franchises, wherever located, shall be counted in the aggregate in determining whether the employer is eligible for this exclusion.

F. "Employee" means any individual employed by an employer and who performs at least 20 hours of work within a calendar year for an employer while physically present within the geographic boundaries of the City of St. Louis, whether on a part-time, full-time or temporary basis, and shall include contingent and contracted workers and individuals working through a temporary service, staffing or employment agency or similar entity, except that the term "employee" shall not include:

1. Any individual engaged in the activities of an educational, charitable, religious, or nonprofit organization where the employer-employee relationship does not, in fact, exist or where the services rendered to the organization are on a voluntary basis;

2. Any individual standing in loco parentis to foster children in their care;

3. Any individual employed for less than four months in any year in a resident or day camp for

children or youth, or any individual employed by an educational conference center operated by an educational, charitable or not-for-profit organization;

4. Any person employed on a casual basis to provide baby-sitting services;

5. Any individual who is an offender, who is incarcerated in any correctional facility, including offenders who provide labor or services on the grounds of such correctional facility;

6. Students of a secondary or post-secondary educational institution participating in a bona fide work-study program shall be exempt from the minimum wage requirements of this chapter provided that said work-study program is certified in advance by the Director of the Department of Human Services or their designee. For purposes of this paragraph, a "work-study program" means an internship or similar program in which a student receives academic credit toward graduation at his or her school in exchange for work or service under the monitoring of a professional;

7. Any handicapped person employed in a sheltered workshop, certified by the Department of Elementary and Secondary Education.

G. "Minimum wage" means all wages, commissions, piece-rate, and bonuses, actually received by the employee.

H. "Piece-rate" means a price paid per unit of work.

I. "Rate of inflation" means the Consumer Price Index annual percent change for urban wage earners and clerical workers, termed CPI-W, or a successor index, for the St. Louis Metropolitan Area (or if not available, for a comparable geographic area), for the twelve months prior to each July 1 as calculated by the United States Department of Labor.

J. "Tips" means (a) a verifiable sum to be presented by a customer as a gift or gratuity in recognition of some service performed for the customer by the employee receiving the tip; and (b) separately-designated amounts collected by an employer from customers that are for services by employees, or are described in such a way that customers might reasonably believe that the amounts are for such services, including but not limited to, those charges designated on receipts under the term "service charge," "delivery charge," or "porterage charge."

K. "Wage" means compensation due to an employee by reason of employment, payable in legal tender of the United States or checks on banks convertible into cash on demand at full face value, subject to such deductions, charges, or allowances as may be permitted by rules of the Department of Human Services. Commissions, piece-rate, and bonuses are included in wages. Tips and employer payments toward a retirement, medical, or other benefit plan do not constitute wages for purposes of this chapter. (1994 C., § 15.170.010; Ord. No. 70090, § 1, 10-2-2015; Ord. No. 70078, § 1, 8-28-2015.)

15.170.020 Wage requirements.

A. *Payment of Minimum Wage Rate Required.* Except as specifically provided in this chapter, every employer shall pay wages to each employee for each hour worked while physically present within the geographic boundaries of the City of St. Louis, beginning the effective date, at a rate not less than $11.00 per hour and, beginning on January 1, 2019, at the rate established by Subsection B of this section and as thereby amended annually. Notwithstanding the above, any employer that complies in full with every requirement of this chapter, shall be entitled to pay employees at or above the lower minimum wage rates set forth in Section 15.170.020.B.1 as of the dates stated therein and, beginning on January 1, 2019, shall pay employees at or above the lower minimum wage rates set forth in Section 15.170.020.B.2 and as thereafter amended annually. In addition to any other penalties, obligations, or requirements set forth in this chapter, any employer that pays an employee at a rate less than the minimum wage rates required herein shall be required to pay wages to its employees at a rate not less than $11.00 per hour beginning from the date of first violation until January 1, 2019, when it shall then pay at a rate not less than the rate as established by Section 15.170.020.B.2 and as thereafter amended annually. The rates set forth herein are subject to Section 15.170.020.B.4.

B. *Establishment of a City Minimum Wage Rate.*

1. *Phase-In of Minimum Wage Rate.* Beginning on the effective date, the minimum wage rate shall be the minimum wage rate established by the State of Missouri. Beginning October 15, 2015, the minimum wage rate shall be increased to $8.25 per hour. Beginning on January 1, 2016, the minimum wage rate shall be increased to $9.00 per hour. Beginning on January 1, 2017, the minimum wage rate shall be increased to $10.00 per hour. Beginning on January 1, 2018, the minimum wage rate shall be increased to $11.00 per hour.

2. *Annual Revision Following Phase-in of Minimum Wage Rate.* Beginning January 1, 2019, and on each January 1 of each successive year thereafter, the minimum wage rate from the previous year shall be increased annually on a percentage basis to reflect the rate of inflation. By October 1, 2018, and each October 1 of each successive year thereafter, the Ways and Means Committee of the Board of Aldermen shall report the rate of inflation and direct the Director of the Department of Human Services to promulgate a rule establishing the revised minimum wage rate effective January 1 of the upcoming calendar year based on the rate of inflation calculated to the nearest five cents. In addition, by October 1, 2018, and each October 1 of each successive year thereafter, the City shall post on its website a bulletin announcing the adjusted minimum wage rate for the upcoming calendar year. The rate set by rule shall not be less than the previous amount established.

3. *Effect of Economic Activity and Regional Impact.* Annually, following the first rate increase in the minimum wage under this chapter, the Board of Estimate & Apportionment shall report to the Board of Aldermen on the economic health of residents and businesses located within the City of St. Louis from the findings of an independent study of a firm selected by the Board of Estimate & Apportionment. Said report shall include, but is not limited to, quantitative and comparative (year-over-year) data pertaining to unemployment rates, poverty rates, business licenses issued, graduation rates, reported payrolls, and other information as requested by the Chair of the Ways and Means or Health and Human Services Committees prior to the development of said report.

4. *Effect of Higher State or Federal Minimum Wage Rate.* If the state or federal minimum wage rate is at any time greater than the minimum wage rate established by this chapter, then that greater rate shall become the minimum wage rate for purposes of this chapter, and shall be increased annually pursuant to Section 15.170.020.B.2 of this chapter, beginning January 1, 2019, for as long as that rate is greater.

C. *Tipped Employee Minimum Wage.*

1. Employees customarily receiving tips. With respect to any employee engaged in an occupation in which the employee customarily and regularly receives more than $30.00 per month in tips, the employer shall pay wages in the amount not less than 50 percent of the minimum wage rate specified pursuant to this chapter, provided that the total compensation in tips and wages for such employee shall total at least the minimum wage rate specified pursuant to this chapter, the difference being made up by the employer. It is the employer's obligation to provide evidence of any amount received by the employee as tips.

D. *Ordinance Adherence.* This chapter does not modify, alter, or amend requirements under the City of St. Louis' Living Wage Ordinance, Service Contracts Ordinance, or other City ordinances relating to wages and benefits; and individuals and entities subject to those ordinances shall pay wages at the rates set under those ordinances, or the applicable rate set under this chapter, whichever rate is higher.

E. *Violations.* It shall be a violation of this chapter for any employer to pay any employee a wage below the minimum wage rate set forth herein. Each day that the employer pays the employee a wage below the minimum wage rate set forth herein shall be a separate violation. (1994 C., § 15.170.020; Ord. No. 70078, § 2, 8-28-2015.)

15.170.030 Other prohibited conduct.

A. It shall be a violation of this chapter for an employer or any other person to interfere with, restrain, or deny the exercise of, or the attempt to exercise any right protected under this chapter.

B. It shall be unlawful, and a violation of this chapter, for any employer to discharge any employee, to reduce the compensation of any employee, to take any adverse action against an employee, or to discriminate against an employee because the employee engaged in any of the following activities:

1. Making a complaint to the Department of Human Services regarding compliance with this chapter;

2. Participating in any investigation of the Department of Human Services regarding compliance with this chapter;

3. Informing his or her employer, fellow employees, union or similar organization, or legal counsel about an employer's alleged violation of this chapter;

4. Exercising, in good faith, the rights protected by this chapter;

5. Opposing or otherwise speaking or advocating against any policy, practice, or act that is unlawful under this chapter; or

6. Availing himself or herself of any of the civil remedies provided herein.

C. It shall be a violation for an employer to enter into any agreement whereby the employer will pay an individual to work for less than the minimum wage prescribed in this chapter as that minimum wage may be amended from time to time.

D. It shall be a violation of this chapter for any employer to violate the rules and regulations promulgated to set the annual minimum wage rate, or that are otherwise promulgated to interpret, apply, or enforce this chapter by the Department of Human Services.

E. It shall be a violation of this chapter for any employee to make any complaint or report to the Department of Human Services that the employee knows to be false. (1994 C., § 15.170.030; Ord. No. 70078, § 3, 8-28-2015.)

15.170.040 Notice and posting.

A. By October 15, 2015, every employer shall post in a conspicuous place at each facility where any employee works that is located within the geographic boundaries of the City a notice advising the employee of the current minimum wage and of the employee's rights under this chapter. Such notice shall include the text of Sections 15.170.020, 15.170.030, and 15.170.050 of this chapter. Employers that do not maintain a business facility within the geographic boundaries of the City and households that serve as worksites for domestic workers are exempt from this paragraph.

B. Beginning October 15, 2015, every employer shall provide with the first paycheck subject to this chapter that is issued to the employee, a notice advising the employee of the current minimum wage and the employee's rights under this chapter. Such notice shall include the text of Sections 15.170.020, 15.170.030, and 15.170.050 of this chapter.

C. The Director of the Department of Human Services shall prepare and make available to employers form notices that satisfy the requirements of this section. These notices will require approval from the Ways and Means Committee of the Board of Aldermen. (1994 C., § 15.170.040; Ord. No. 70078, § 4, 8-28-2015.)

15.170.050 Enforcement.

A. *Rules and Regulations.* The Director of the Department of Human Services may, with direction and approval from the Ways and Means Committee of the Board of Aldermen, promulgate rules and regulations regarding the interpretation, application, and enforcement of this chapter. Such rules and regulations may include, but are not limited to, those further defining terms used in this chapter, and setting forth more particularized applications of this chapter's exceptions and exemptions.

B. *Complaints and Investigations.* The Department of Human Services and the City Counselor's Office are authorized to receive any complaint regarding a possible or suspected violation of this chapter and further authorized to take appropriate steps to enforce this chapter, including, regardless of whether there is a complaint, investigating any possible or suspected violation of this chapter.

C. *Penalty for Violations.* Performance of any act prohibited by this chapter, and failure to perform any act required by this chapter, shall be punishable by a sentence of not more than 90 days in jail, or by a fine of not more than $500.00 per violation or both or by any combination of sentence and fine up to and including the maximum sentence and maximum fine. Each day that any violation hereunder continues is a separate violation subject to the penalties provided in this chapter.

In addition to all other penalties set forth herein, an employer may be subject to conditions which will serve to compensate the victim, including that the employer pay restitution to any employee in the form of unpaid back wages plus interest from the date of nonpayment or underpayment, to the extent allowed by the City Charter and the law.

D. *Revocation of Licenses and Permits for Repeated Violations.* Every business license issued pursuant to Title 8 of the Revised Code of the City of Saint Louis, may be revoked by the License Collector's Office if the License Collector's Office concludes, upon results of an investigation, that the employer has engaged in repeated violations or intentional violations of this chapter. Any occupancy permit, and any other permit, variance, or license issued by the City of St. Louis may be revoked by the Board of Public Service if the Board of Public Service concludes, upon notice and hearing, that the employer has engaged in repeated violations or intentional violations of this chapter. Such Board of Public Service proceeding may be initiated by the Board of Public Service itself, the Director of the Department of Human Services, the City Counselor, or by a verified complaint submitted by two or more employees of the employer accused of repeated violations or intentional violations of the chapter that is accompanied by affidavits signed by each such employee which states with particularity the facts underlying the complaint. The

Board of Public Service shall promulgate rules and regulations setting forth the procedures it will follow in any such revocation proceeding.

E. *Actions by Employee.* Nothing contained in this chapter shall be in any way construed to limit or abridge any rights of an employee at common law, by statute, or by ordinance to bring a civil action against an employer. (1994 C., § 15.170.050; Ord. No. 70078, § 5, 8-28-2015.)

15.170.060 Collective bargaining.

Nothing in this chapter shall be deemed to interfere with, impede, or in any way diminish the right of employees to bargain collectively with their employers through a representative of their own choosing in order to establish wages or other conditions of employment in excess of the applicable minimum wage rate established by this chapter. (1994 C., § 15.170.060; Ord. No. 70078, § 6, 8-28-2015.)

Chapter 15.175

DISCRIMINATION BASED ON HEALTH DECISIONS OR PREGNANCY

Sections:

15.175.010	**Definition of terms.**
15.175.020	**Prohibited discriminatory practices.**
15.175.030	**Complaints, proceedings and enforcement.**
15.175.040	**Rights or remedies for sex discrimination.**

15.175.010 Definition of terms.

As used in this chapter, unless a different meaning clearly appears from the context in which used, the following terms and phrases shall be taken to have the meaning ascribed to them in this section, to wit:

A. "Academic, professional or vocational school" includes any person who trains and teaches individuals to engage in any trade, business, profession, calling or vocational pursuit.

B. "Adverse employment action" includes, but is not limited to, termination, demotion or refusal to promote or advance, loss of career specialty, reassignment to a different shift, reduction of wages or benefits, refusal to provide training opportunities or transfer to a different department, adverse administrative action, or any other penalty, disciplinary or retaliatory action.

C. "Aggrieved person" includes any person who claims to have been injured by a discriminatory act or practice described herein.

D. "Discriminatory practice" means an act that is prohibited by the provisions of this chapter.

E. "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

F. "Employer" includes any person who employs six or more persons exclusive of that person's parents, spouse or children.

G. "Employment agency" includes any person undertaking for compensation to procure opportunities to work or to procure, recruit, refer or place employees.

H. "Financial institution" means bank, banking organization, mortgage company, insurance company, investment company or other lender to whom application is made for financial assistance for the purchase, lease, acquisition, construction, rehabilitation, repair, maintenance, or improvement of real property, or an individual employed by or acting on behalf of or as agent of any of these.

I. "Individual" means one or more individuals.

J. "Labor organization" includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment.

K. "Person" includes one or more individuals, partnerships, associations, unincorporated organizations, corporations, mutual companies, joint stock companies, legal representatives, trusts, trustees, labor organizations, fiduciaries, trustees in bankruptcy, and/or receivers.

L. "Real estate broker" or "Real estate salesman" has the same definition as contained in Ordinance 67119.

M. "Realty" includes real estate, lands, buildings, structures, housing accommodations, dwellings, tenements, leaseholds, cooperatives, condominiums, and hereditaments, corporeal or incorporeal, or any interest in the above.

N. "Reproductive health decision" means any decision related to the use or intended use of a particular drug, device, or medical service related to reproductive

health, including the use or intended use of contraception or fertility control or the planned or intended initiation or termination of a pregnancy.

O. "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (1994 C., § 15.175.010; Ord. No. 70459, § 1, 2-13-2017.)

15.175.020 Prohibited discriminatory practices.

A. *General Prohibition.* Discriminatory practices, as defined and established by this section, are prohibited. Any person engaging in a prohibited discriminatory practice shall be guilty of an ordinance violation, which shall be punishable in the manner set out in this chapter.

B. *Discrimination in Employment.* It shall be a prohibited discriminatory employment practice:

1. For an employer to fail or refuse to hire, to discharge or otherwise to discriminate against any individuals with respect to compensation or the terms, conditions or privileges of employment, because of their reproductive health decisions or pregnancy status (including childbirth or a related medical condition). However, nothing in this chapter shall require a religious institution, corporation, association, or society to provide reproductive health benefits of any kind;

2. For an employer to take any adverse employment action against an employee based on a reproductive health decision by an employee or employee's dependent. However, nothing in this chapter shall require a religious institution, corporation, association, or society to provide reproductive health benefits of any kind;

3. For a labor organization to exclude or expel from membership, or otherwise to discriminate against any applicants or members, because of their reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

4. For an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against any individuals because of their reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

5 For an employer, labor organization or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to make any inquiry in connection with prospective employment, which expresses directly or indirectly any preference, limitation, specification or discrimination because of reproductive health decisions or pregnancy status (including childbirth or a related medical condition), unless based upon a bona fide occupational qualification;

6. Nothing in this chapter shall prohibit a religious institution, corporation, association, society, health care facility or educational institution with historic religious affiliation from:

a. Prohibiting the provision of any reproductive health service on property owned or leased by it;

b. Refusing to provide or pay for any reproductive health service to any patient, student or employee; or

c. Refusing to provide health insurance coverage to any employee for any reproductive health service.

C. *Discrimination in Provision of Housing or Realty.*

1. *Prohibited Discriminatory Housing or Realty Practices.* It shall be a prohibited housing or realty practice and shall constitute a discriminatory housing practice:

a. For any person, including, without limitation, any real estate broker, salesman or agent, or any employee thereof, to discriminate against any individuals because of their reproductive health decisions or pregnancy status (including childbirth or a related medical condition), with respect to the use, enjoyment or transfer, or prospective use, enjoyment or transfer, of any interest whatsoever in realty, or with respect to the terms, conditions, privileges or services granted or rendered in connection therewith, or with respect to the making or purchasing of loans for the purchase or maintenance of residential real estate or loans in the secondary market, or the provision of other financial assistance, or with respect to the terms, conditions, privileges or services granted or rendered in connection with any interest whatsoever in realty, or with respect to the making of loans secured by residential real estate;

b. For any person, including, without limitation, any banking, money lending, credit securing or other financial institution, or any officer, agent or employee thereof, to discriminate against any individuals because of or their reproductive health decisions or pregnancy status (including childbirth or a related medical condition), with respect to the granting or withholding of credit or financial assistance, or the extending or renewing of credit or financial assistance, or modifying of rates, terms, conditions, privileges or other provisions of credit or financial assistance, or services retained or rendered, in connection with the transfer or prospective

transfer of any interest whatsoever in realty, or in connection with the construction, repair, improvement or rehabilitation of realty;

c. For any real estate broker, salesman or agent, or any employee thereof, or any other person seeking financial gain thereby, directly or indirectly to induce or solicit, or attempt to induce or solicit, the transfer of any interest whatsoever in realty, by making or distributing, or causing to be made or distributed, any statement or representation concerning the entry or prospective entry into the neighborhood of a person or persons of person based on said person's reproductive health decision or pregnancy status (including childbirth or a related medical condition);

d. For any person to refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate the sale or rental of, or otherwise make unavailable or deny a dwelling to any persons because of their reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

e. For any person to discriminate against any other person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of that person's reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

f. For any person to make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on reproductive health decisions or pregnancy status (including childbirth or a related medical condition) or an intention to make any such preference, limitation, or discrimination;

g. For any person to represent to another person because of reproductive health decisions or pregnancy status (including childbirth or a related medical condition), that any dwelling is not available for inspection, sale, or rental when such dwelling is, in fact, so available;

h. For any person to deny any other person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation on account of reproductive health decisions or pregnancy status (including childbirth or a related medical condition);

i. Notwithstanding the foregoing, a person engaged in the business of furnishing appraisals of real property may take into consideration factors other than reproductive health decisions or pregnancy status, subject also to the requirements of Ordinance 67119;

j. Nothing in this chapter shall prohibit a religious institution, corporation, association, society, health care facility or educational institution with historic religious affiliation from:

i. Prohibiting the provision of any reproductive health service on property owned or leased by it;

ii. Refusing to provide or pay for any reproductive health service to any patient, student or employee; or

iii. Refusing to provide health insurance coverage to any employee for any reproductive health service. (1994 C., § 15.175.020; Ord. No. 70459, § 2, 2-13-2017.)

15.175.030 Complaints, proceedings and enforcement.

An aggrieved person may, not later than one hundred eighty (180) days after an alleged prohibited discriminatory practice has occurred or terminated, file a complaint with the Director of the Civil Rights Enforcement Agency pursuant to the procedures set forth in Ordinance 67119. Such complaints shall be taken, investigated, processed and enforced according to the terms and provisions of Ordinance 67119. (1994 C., § 15.175.030; Ord. No. 70459, § 3, 2-13-2017.)

15.175.040 Rights or remedies for sex discrimination.

The terms and provisions of this chapter are not intended to, and shall not be construed to, limit or alter any individual's rights or remedies for sex discrimination under existing federal, state, and local laws. (1994 C., § 15.175.040; Ord. No. 70459, § 4, 2-13-2017.)

Chapter 15.180

TAMPERING WITH A WITNESS OR VICTIM

Sections:

15.180.010 Definitions.
15.180.020 Tampering with a witness or victim.
15.180.030 Summons and penalty.

15.180.010 Definitions.

For the purposes of this chapter:

A. "Witness" means any natural person:

1. Having knowledge of the existence or nonexistence of facts relating to any crime; or

2. Whose declaration under oath is received as evidence for any purpose; or

3. Who has reported any crime to any peace officer or prosecutor; or

4. Who has been served with a subpoena issued under the authority of any court or any administrative or legislative body.

B. "Victim" means any natural person against whom any crime is deemed to have been perpetrated or attempted. (1994 C., § 15.180.010; Ord. No. 70514, § 1, 2-21-2017.)

15.180.020 Tampering with a witness or victim.

A person commits the offense of tampering with a witness or victim if:

A. With the purpose to induce a witness or a prospective witness to disobey a subpoena or other legal process, absent himself or herself, avoid subpoena or other legal process, withhold evidence, information, or documents, or testify falsely, he or she:

1. Threatens or causes harm to any person or property; or

2. Uses force, threats or deception; or

3. Offers, confers or agrees to confer any benefit, direct or indirect, upon such witness; or

4. Conveys any of the foregoing to another in furtherance of a conspiracy; or

B. He or she purposely prevents or dissuades or attempts to prevent or dissuade any person who has been a witness or victim of any crime or a person who is acting on behalf of any such witness or victim from:

1. Making any report of such victimization or crime to any peace officer or dispatcher; state, local, or federal law enforcement officer; prosecuting agency; official or agency within the City of St. Louis; or judge;

2. Causing a complaint, summons, indictment, or information to be sought, prosecuted, or acted upon, or assisting in the prosecution thereof;

3. Arresting or causing or seeking the arrest of any person, or engaging or seeking the engagement of an agency of the City of St. Louis, in connection with such victimization. (1994 C., § 15.180.020; Ord. No. 70514, § 2, 2-21-2017.)

15.180.030 Summons and penalty.

Any person who engages in conduct which tampers with a witness or victim based upon the above language within the City of St. Louis may be issued a summons for "tampering with a witness or victim." A defendant who is found guilty of or pleads guilty to "Tampering with a witness or victim" shall be subject to a fine of not less than $100.00, and not more than $500.00, or any other penalty available by law including up to 90 days of incarceration for each violation. Each occurrence of said behavior regardless of proximity in time to any other said violation shall be deemed a separate and distinct offense for which a summons may be issued. (1994 C., § 15.180.030; Ord. No. 70514, § 3, 2-21-2017.)

Chapter 15.185

USE OF FORCE POLICY

15.185.010 Ban on chokeholds and strangleholds.

A. This Section 15.185.010 directs the Commissioner of Police to amend Section III of SO 1-01, USE OF NON-DEADLY FORCE GENERAL, issued April 16, 2014, to include a restriction to specifically ban the use of chokeholds or strangleholds by officers in non-deadly force encounters. A chokehold or stranglehold shall include, but is not limited to, any sustained and intentional pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air.

B. Penalties. Any person who violates subdivision A of this section shall be punishable by the fines and imprisonment of the City of St. Louis Charter, Article IV.

C. Any penalties resulting from a violation of subdivision A of this section shall not limit or preclude any cause of action available to any person or entity injured or aggrieved by such violation. (Ord. No. 71186, § 1, 7-9-2020.)

15.185.020 Requirement for de-escalation tactics.

A. This Section 15.185.020 directs the Commissioner of Police to amend the St. Louis Metropolitan Police Department Use of Force Policy Special Order, SO 1 - 01 issued April 16, 2014, to include a new section requiring the use of de-escalation tactics. When it is safe under the totality of the situation and time and circumstances permit, officers shall be required to use de-escalation techniques and tactics in order to reduce any threat or to gain compliance to lawful commands without the use of force or with the lowest level of force possible. De-escalation may take the form of scene management, team tactics, and/or individual engagement. Even when individual engagement is not feasible, de-escalation techniques including scene management and team tactics such as time, distance, and shielding,

should still be used unless doing so would create undue risk of harm to any person due to the exigency/threat of a situation.

B. Penalties. Any person who violates subdivision A of this section shall be punishable by the fines and imprisonment of the City of St. Louis Charter, Article IV.

C. Any penalties resulting from a violation of subdivision A of this section shall not limit or preclude any cause of action available to any person or entity injured or aggrieved by such violation. (Ord. No. 71186, § 2, 7-9-2020.)

15.185.030 Duty to intervene policy.

A. This Section 15.185.030 directs the Commissioner of Police to amend Section III of SO 1-01, issued April 16, 2014, to include a Duty to Intervene Policy that requires officers to either stop or attempt to stop another sworn employee when excessive force is being inappropriately applied or is no longer required.

B. It shall further include that officers who use force or observe the use of force shall verify that their supervisors are notified following any use-of-force incident. Upon receiving notice of an allegation of excessive use of force, officers shall verify their supervisors are aware of the allegation of unreasonable or unreported use of force by an officer.

C. Officers who observe excessive use of force and fail to report it shall be subject to disciplinary action, up to and including termination.

D. This chapter shall mandate a training program for police trainees to cover racial profiling, implicit bias, procedural justice, establish a training program that covers the duty to intervene; and

E. Penalties. Any person who violates subdivision A or B of this section shall be punishable by the fines and imprisonment of the City of St. Louis Charter, Article IV.

F. Any penalties resulting from a violation of subdivision A of this section shall not limit or preclude any cause of action available to any person or entity injured or aggrieved by such violation. (Ord. No. 71186, § 3, 7-9-2020.)

15.185.040 Comprehensive reporting requirements.

A. The Commissioner of Police must amend Section VIIA. FIREARM DISCHARGED/OTHER DEADLY FORCE (1.3.6.a) to include reporting requirements when a firearm is withdrawn and pointed at a civilian regardless if the weapon is discharged or not.

B. If a National Police Misconduct Registry is compiled and maintained by the Department of Justice, the St. Louis Metropolitan Police Department shall comply and report data accordingly to include, but not limited to:

i. Each complaint filed against a law enforcement officer, aggregated by complaints that were found to be credible or that resulted in disciplinary action of the law enforcement officer, disaggregated by whether the complaint involved a use of force; complaints that are pending review, disaggregated by whether the complaint involved a use of force; and

ii. Complaints for which the law enforcement officer was exonerated or that were determined to be unfounded or not sustained, disaggregated by whether the complaint involved a use of force.

iii. Discipline records, disaggregated by whether the complaint involved a use of force.

iv. Termination records, including the reason for each termination, disaggregated by whether the complaint involved a use of force.

v. Records of lawsuits and settlements made against law enforcement officers.

C. Annual comprehensive financial and management audits must be submitted to the Public Safety Committee of the Board of Aldermen annually no later than December 1 with the first report due by December 1, 2020.

D. Penalties. Any person who violates subdivision A of this section shall be punishable by the fines and imprisonment of the City of St. Louis Charter, Article IV.

E. Any penalties resulting from a violation of subdivision A of this section shall not limit or preclude any cause of action available to any person or entity injured or aggrieved by such violation. (Ord. No. 71186, § 4, 7-9-2020.)

15.185.050 Ban on no-knock warrants for drug cases.

A. Policy addition for search warrants authorized for drug cases shall require that a law enforcement officer execute the search warrant only after providing notice of his or her authority and purpose.

B. In this section, the term "no-knock warrant" means a warrant that allows a law enforcement officer to enter a property without requiring the law enforcement officer to announce the presence of the law enforcement officer or the intention of the law enforce-

ment officer to enter the property. (Ord. No. 71186, § 5, 7-9-2020.)

Chapter 15.186

IDENTIFICATION REQUIREMENTS OF POLICE OFFICERS

Sections:

15.186.010	**Definitions.**
15.186.020	**Duty to identify and inform.**
15.186.030	**Exceptions.**
15.186.040	**Policy and procedures for consent searches.**

15.186.010 Definitions.

For purposes of this chapter the terms set forth below shall be defined as follows:

1. "Business Card" means the standardized, preprinted business cards used by officers to identify themselves to a person who is the subject of a consent search (as defined in this section) pursuant to section 15.186.020 of this chapter. At a minimum, business cards shall include the following information: The officer's name, rank, badge number, the email address and phone number for the City's Civilian Oversight Board and a statement that the person may contact the Civilian Oversight Board to lodge a complaint with the Civilian Oversight Board about their encounter with the officer conducting the consent search, as well as information, including a telephone number and email address, for submitting comments and compliments about their encounter with the officer.

2. "City" means the City of St. Louis.

3. "Commissioner" means the Commissioner of the City of St. Louis Metropolitan Police Department.

4. "Consent search" is a search conducted by officers after obtaining the voluntary consent, as defined in this section, for the search from the person to be searched or an individual with actual or apparent authority over the vehicle, home, or property to be searched, and the search is not being conducted pursuant to a warrant or exception to warrant requirement under applicable law, where the officer has reasonable suspicion or probable cause for the search, and the search is not incident to a lawful arrest. The persons who are asked to consent to a search may refuse to consent to the search and may withdraw their consent at any time during the search without consequences to them.

5. "Department" means the City of St. Louis Metropolitan Police Department.

6. "Voluntary consent" means the voluntary consent to a search granted by a person giving their consent to the search, and their right to refuse consent to the search or revoke their consent at any time during the search without consequences to them.

7. "Officer" means a sworn peace officer of the City of St. Louis Metropolitan Police Department.
(Ord. No. 71718, § 1 7-31-2023)

15.186.020 Duty to identify and inform.

A. During a consent search, as defined in Section 15.186.010 of this chapter, officers shall identify themselves to the person who is the subject of the consent search by providing their name and badge number and shall explain to the person the reason for the consent search unless the explanation would impair a criminal investigation.

B. Officers may offer a business card to the person who is the subject of the consent search at the initiation of the consent search unless doing so would impair a criminal investigation. Officers must offer the person who is the subject of the consent search a business card at the conclusion of the consent search if the activity does not result in an arrest or summons. Where the subject of the consent search is a minor, officers shall offer a business card to the minor subject of the consent search or, if present at the scene a parent or legal guardian if the consent search does not result in an arrest or summons.

C. During a consent search, if an officer does not have enough business cards to give to a person who is the subject of the consent search the officer shall offer to provide the information that must be on the business card in writing or orally. Where the subject of the consent search is a minor, officers shall offer to provide the minor the information that must be on the business card in writing or orally or, if present at the scene, a parent or legal guardian. If it is requested that the officer provide the information that must be on the business card orally, officers shall allow sufficient time to record the information and if necessary, shall provide a writing instrument and paper for this purpose.

D. As part of the policy requirements of Section 15.186.040 of this chapter the Department shall have a plan for ensuring that officers have an adequate number of business cards while on duty.
(Ord. No. 71718, § 2, 7-31-2023)

15.186.030 Exceptions.

Officers shall not be required to comply with the requirements of Section 15.186.020 of this chapter when the officer is engaged in an official Department undercover operation or investigation, and the consent search is conducted in the course or as a part of the undercover operation or investigation or any search that is exempt from the warrant requirement under existing law. Such exemptions to the warrant requirement include, but are not limited to:

1. Exigent circumstances exist at the time that require immediate action by an officer to prevent the destruction of evidence, forestall or prevent the fleeing of a suspect, harm to an individual, or the impairment of a current criminal investigation.

2. The officer is conducting a search of a person or property, including an administrative search or identification as a condition of entering a public building or facility, location, event, or gathering, including random security checks of backpacks, bags, and other containers used to carry personal or other items.

3. The officer is verifying the identity of a person seeking entry to an area which entry is restricted by the Department due to a public health, public safety, or security concerns.

(Ord. No. 71718, § 3, 7-31-2023.)

15.186.040 Policy and procedures for consent searches.

A. The Department shall develop a written policy with standard procedures for officers' conduct of consent searches, whether dressed in uniform or civilian clothing, with exceptions for officers that are engaged in an official Department undercover operation or investigation. The policy shall:

1. Clearly define "consent search" and "voluntary consent" and explain the meaning of voluntary consent using plain language.

2. Establish a procedure for requesting persons to voluntarily consent to a search, that includes clear notice to the person that they do not have to consent to the search and may revoke their consent at any time during the search without consequences to them.

3. Guidance for officers for ensuring and affirming that a subject clearly understands they are being asked to voluntarily consent to the search and that they may refuse to consent to the search and may revoke their consent at any time during the search without consequence to them.

4. Procedures for requesting a person to consent to a search who does not speak or has little or limited proficiency understanding or speaking English, including bilingual interpreters, to ensure and affirm the subject clearly understands they are being asked to voluntarily consent to the search and that they may refuse to consent to the search and may revoke their consent at any time during the search without consequence to them.

5. Procedures for how officers must act if a person refuses to consent or revokes their consent to a search.

B. The Department shall develop and implement procedures to obtain written documentation or other objective proof of subjects' voluntary consent to a search, refusal to consent to a search, and revocation of their consent to a search. This shall include procedures for persons to sign a standardized written statement developed by the Department confirming the persons' voluntary consent, refusal to consent, or revocation of their consent to a search, or by documenting their voluntary consent, refusal to consent, or revocation of their consent to a search by audio or video recording, or by other unbiased, objective methods evidencing that officers have complied with the provisions of this chapter and the Department's policies and procedures for obtaining voluntary consent to a search.

C. The policy shall include procedures and clear guidance for keeping and maintaining records and related documentation of stops where persons voluntarily consent to a consent search, and persons who refuse to consent to a search or revoke or their consent to a search. The procedures shall include steps for making, receiving, and the timely processing of public requests for such records.

D. The Department shall compile, and publish on its website, a quarterly report detailing the number of consent searches conducted by officers during the preceding quarter, the number of times consent to a search was refused, and the number of times consent was revoked during a consent search. The first quarter for each reporting year shall begin on January 1. Quarterly reports shall be published on the Department's website within ten (10) calendar days of the end of each quarter. The initial quarterly report shall be for the first full quarter following the effective date of this chapter.

E. The Department shall develop and be ready to implement the policy within ninety (90) following the effective date of this chapter. The Department shall

make their policy publicly available on the Department's website and shall provide print copies of the policy to the public upon request.

F. The Commissioner is hereby authorized to promulgate additional policy and procedural measures, and rules that may be necessary for the effective implementation and enforcement of the policy and carrying out the intent and purpose of this chapter.

G. The Department shall submit a copy of the initial policy in electronic form via email, or hardcopy to the Clerk of the Board of Aldermen prior to its implementation. Thereafter, at any time changes are made to the policy, a copy of the updated policy shall be submitted to the Clerk of the Board of Aldermen, as specified above, that shows the changes being made to the policy, and the Department shall publish the updated policy on the Department's website before the changes may be implemented by the Department.
(Ord. No. 71718, § 1 7-31-2023.)

Chapter 15.190

COMMERCIAL USE OF DRONES

Sections:

15.190.010	**Purpose and intent.**
15.190.020	**Definitions.**
15.190.030	**Prohibited operations for drones used for commerce or business.**
15.190.040	**Reasonable time, place, and manner of drone operations.**
15.190.050	**Exemption.**
15.190.060	**Penalty for violation.**

15.190.010 Purpose and intent.

The commercial, business, or for-profit operation of unmanned aircraft ("UA") systems, commonly referred to as "drones," can pose significant public safety hazards to persons and property on the ground. By imposing community-based safety regulations and restrictions on the commercial or for-profit operation of drones and other UAs that do not preempt federal aviation rules or state law, the City may protect the public from the hazards associated with the commercial operation of UAs, such as unwanted harassment or invasion of privacy, voyeurism, trespass, and other laws concerning public safety.
(Ord. No. 71813, § 1, 3-26-2024.)

15.190.020 Definitions.

Aircraft shall mean any device now known or hereafter invented, used, or designed for navigation of or flight through the air.

Altitude shall mean the actual height above ground level at which the aircraft is flying.

Drone, unmanned aircraft, or *UA* shall mean an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft.

FAA shall mean the Federal Aviation Administration.

Model aircraft shall mean an unmanned aircraft that is (1) capable of sustained flight in the atmosphere; (2) flown within visual line of sight of the person remotely operating the aircraft; (3) flown for hobby, educational, or recreational purposes; and (4) not flown for commercial or for-profit purposes.

Operator shall refer to the person who engages in the navigation of a drone or unmanned aircraft in the City of St. Louis. Any person who operates a drone or any other UA for commercial purposes in the City of St. Louis shall (1) have a valid remote pilot certificate from the FAA and (2) shall be in compliance with all standards set forth under the FAA's Small UAs Rule (Part 107) where required.

Surveillance shall mean the collection or obtaining information pertaining to: (a) crimes or wrongs done or threatened; (b) the identity, habits, conduct, business, occupation, honesty, integrity, credibility, knowledge, trustworthiness, efficiency, loyalty, activity, movement, whereabouts, affiliations, associations, transactions, acts, reputation, or character of any person; (c) the location, disposition, or recovery of lost or stolen property; (d) securing evidence to be used before any court, board, officer, or investigating committee; (e) sale of personal identification information to the public; or (f) the cause of responsibility for libel, losses, accident, or damage or injury to persons or property or protection of life or property.
(Ord. No. 71813, § 1, 3-26-2024.)

15.190.030 Prohibited operations for drones used for commerce or business.

1. All persons and entities operating a drone within the limits of the City of St. Louis for commercial or business purposes shall first obtain the required licensure in order to operate, including (a) a remote pilot certificate from the FAA and (b) a business license obtained from the License Collector's Office pursuant to Chap-

ter 8.02 of the Code of Ordinances of the City of St. Louis. "Commercial" or "business" purposes shall refer to the advertising, offering for sale, sale, or distribution, or any combination thereof, of any services and any property, tangible or intangible, real, personal, or mixed, and any other article, commodity, or thing of value situated in the City of St. Louis.

2. To help to maintain the safety of the public, no person shall take off, land, or operate a drone for commercial or business purposes within twenty-five (25) feet of another person without that person's permission, except the operator or the operator's designee.

3. No person shall operate a drone for commercial or business purposes within three hundred (300) feet over events that have been permitted by the City that are open to the public.

4. No person shall operate a drone that has any type of weapon, or other device designed for inflicting bodily harm or physical damage, attached to it.

5. No person shall take off, land, or operate a drone in a manner that endangers or creates a substantial risk of serious injury for any person or property.
(Ord. No. 71813, § 1, 3-26-2024.)

15.190.040 Reasonable time, place, and manner of drone operations.

1. No person shall take off, land, or operate a drone in violation of any temporary flight restriction or notice to airmen as issued by the FAA.

2. Emergency vehicles. No person shall operate a drone for commercial or business purposes within three hundred (300) feet of any emergency vehicle that is operating with lights and/or sirens, including any active law enforcement or emergency medical response.

3. Schools. No person shall operate a drone for commercial or business purposes within an altitude of three hundred (300) feet of a school facility.

4. Publicly-owned buildings. No person shall operate a drone for commercial or business purposes within an altitude of three hundred (300) feet of any jails, detention or holding facilities, law enforcement facilities, courthouses, or any publicly owned building.

5. No person shall operate a drone for commercial or business purposes within an altitude of three hundred (300) feet over events that have been permitted by the City that are open to the public, unless the operator is granted permission by either the event permit holder or the City's Special Events Office.
(Ord. No. 71813, § 1, 3-26-2024.)

15.190.050 Exemption.

1. This chapter shall not apply to any drone operated by first responders, including the Police Department, the Fire Department, the City Emergency Management Agency, or any other City department or agency or designee.

2. This chapter shall not apply to members of the press who operate drones to collect video footage or photographs for journalistic purposes and activities protected by the Constitution.

3. This chapter shall not apply to individuals who operate model aircraft, drones, and other UAs for recreational or educational purposes for which no compensation is received.
(Ord. No. 71813, § 1, 3-26-2024.)

15.190.060 Penalty for violation.

Upon conviction of a violation under this chapter, punishment shall be imposed by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). Any person operating a drone in violation of this section shall be subject to citation, seizure, and impoundment by the Police Department. Whenever a police officer has probable cause to believe that a drone is subject to seizure and impoundment pursuant to Sections 15.190.020 through 15.190.040, the impoundment of such drone shall be deemed an emergency removal. The police officer shall provide for the impoundment of the drone to a facility controlled by the City or its agents. When the drone is impounded, the police officer shall notify the person who is found to be in control of the drone at the time of the alleged violation, if there is such a person, of the fact of the seizure and of the drone owner's right to appeal the impoundment under the provisions of Section 17.56.060.
(Ord. No. 71813, § 1, 3-26-2024.)

Chapter 15.192

SURVEILLANCE TECHNOLOGY USAGE

Sections:

15.192.010	**Definitions.**
15.192.020	**Board of Aldermen approval mandatory.**
15.192.030	**Surveillance use plan ("SUP") and timing of review, hearings, and votes.**
15.192.040	**Review of preexisting uses mandatory.**
15.192.050	**Lead entity identification.**

15.192.060 Standard for approval.
15.192.070 Annual surveillance reports.
15.192.080 Remedies; discipline; whistleblower protections; exclusionary rule; deletion/destruction requirement.
15.192.090 Use of unapproved surveillance technology in exigent circumstances.

15.192.010 Definitions.

Artificial intelligence means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments. Artificial intelligence systems use machine- and human-based inputs to perceive real and virtual environments; abstract such perceptions into models through analysis in an automated manner; and use model inference to formulate options for information or action. This definition shall comply with the meaning outlined in 15 U.S.C. 9401(3).

City entity means any agency, department, bureau, unit, or commission of the City of St. Louis or any person or entity acting on behalf of any agency, department, bureau, unit, or commission of the City of St. Louis. A Special Tax District shall not be considered a City entity.

Committee means a committee to which, pursuant to the Rules of the Board of Aldermen, bills affecting matters that are subject to this chapter are assigned.

Discrimination means the disparate treatment or consideration of, or making a distinction in favor or against a person based on the characteristics, real or perceived, for which discriminatory treatment is prohibited under the laws and regulations of the United States, the State of Missouri, and the Charter and ordinances of the City of St. Louis, which shall include the following characteristics; race, religion, national origin, age, sex, sexual orientation, gender identity, pregnancy, familial status, disability, veteran status and genetic status.

Disparate impact means an adverse effect that is disproportionately experienced by individuals having traits, characteristics, or status as to which discrimination is prohibited under the Constitution or any laws of the United States, under the constitution or any law of the state of Missouri, or the Charter or any ordinance of the City of St. Louis.

Exigent circumstances means an emergency involving imminent danger of death or serious physical injury to any person that requires the immediate use of surveillance technology or the information it provides.

New surveillance technology shall mean any type of surveillance technology, the acquisition of which was not previously approved by the Board of Aldermen pursuant to the requirements of this chapter. A surveillance technology is not considered a new surveillance technology where its capabilities and functionality do not differ in any significant way from a previously approved version of an equivalent surveillance technology.

Surveillance data means any information or data collected, captured, recorded, retained, processed, intercepted, analyzed, or shared by surveillance technology.

Surveillance technology shall mean any electronic surveillance device, hardware, or software that is capable of collecting, capturing, recording, retaining, processing, intercepting, analyzing, monitoring, or sharing audio, visual, digital, location, thermal, biometric, behavioral, or similar information or communications specifically associated with, or capable of being associated with, any specific individual or group; or any system, device, or vehicle that is equipped with an electronic surveillance device, hardware, or software has the principal or an intended purpose of monitoring activities, behavior, or changing conditions to influence, manage, monitor, or protect the safety and welfare of individuals or groups, or to aid in the prevention of criminal activity or the investigation of suspected criminal activity. Surveillance technology includes but is not limited to these or their successor technologies: (a) international mobile subscriber identity (IMSI) catchers and other cell site simulators; (b) automatic license plate readers; (c) closed-circuit television cameras; (d) biometric surveillance technology, including facial, voice, iris, and gait-recognition software and databases; (e) mobile DNA capture technology; (f) gunshot detection and location hardware and services; (g) x-ray vans; (h) video and audio monitoring and/or recording technology, such as surveillance cameras, wide-angle cameras, and wearable body cameras; (i) surveillance enabled or capable light bulbs or light fixtures; (j) social media monitoring software; (k) through-the-wall radar or similar imaging technology; (l) passive scanners of radio networks; (m) long-range Bluetooth and other wireless-scanning devices; (n) radio-frequency I.D. (RFID) scan-

ners; (o) software designed to integrate or analyze data from surveillance technology, including surveillance target tracking and predictive policing software. and (p) technology that includes artificial intelligence to deploy, direct, execute, analyze, or engage in surveillance. The enumeration of surveillance technology examples in this subsection shall not be interpreted as an endorsement or approval of their use by any City entity; "Surveillance technology" does not include the following unless they have been equipped with, or are modified to become or include, a surveillance technology as defined herein: a. Routine office hardware (such as televisions, computers, and printers) that are in widespread public use and will not be used for any surveillance or surveillance related functions; b. Parking Ticket Devices (PTD); c. Surveillance devices that cannot record or transmit audio or video or be remotely accessed, such as image stabilizing binoculars, night vision goggles, or similar imaging devices; d. City entity databases that do not and will not contain any data or other information collected, captured, recorded, retained, processed, intercepted, or analyzed by surveillance technology including but not limited to databases containing private healthcare information required under the Health Insurance Portability and Accountability Act (HIPAA), disease outbreak management systems and e. Manually operated technological devices that are used primarily for internal City entity communications and are not designed to surreptitiously collect surveillance data, such as radios, tablets, city-issued cell phones, and email systems.

Viewpoint-based shall mean targeted at any community or group or their members because of their exercise of rights protected under the First Amendment of the United States Constitution.

(Ord. No. 71842, § 1, 5-1-2024.)

15.192.020 Board of Aldermen approval mandatory.

A. A City entity must obtain Board of Aldermen approval in the form of a resolution that shall be introduced to the full Board of Aldermen, referred to the relevant committee, and thereafter voted on by the committee subsequent to a mandatory, properly-noticed, germane, hearing at which the public is afforded a fair and adequate opportunity to provide online, written, and oral testimony, as referenced in Section 15.192.030.F prior to engaging in any of the following:

1. Accepting funds for a new surveillance technology, including but not limited to grant funding, or accepting state or federal funds or in-kind or other donations;

2. Acquiring, borrowing, or sharing surveillance technology, including the surveillance data therefrom, whether or not that acquisition is made through the exchange of monies or other consideration;

3. Using new or existing surveillance technology for a purpose or in a manner not previously approved pursuant to this chapter, or exceeding a quantitative limit as outlined within the surveillance use plan previously approved by the Board of Aldermen in accordance with this chapter, including the acquisition or sharing of surveillance data therefrom; or

4. Soliciting proposals for or entering into an agreement with any other person or entity, by way of a request for a proposal (RFP), to acquire, share, or otherwise use surveillance technology or surveillance data.

B. Nothing in this section shall be deemed to prohibit:

1. A City law enforcement entity, in the course of a specific, active criminal investigation, from securing surveillance data from a non-City entity pursuant to a judicially-issued probable cause warrant, from receiving surveillance data voluntarily provided for no monetary or other consideration by a non-City entity or an individual not acting in their capacity as an employee or agent of a City entity, or from allowing an individual not acting in their capacity as an employee or agent of a City entity to review but not possess surveillance data in possession of the city law enforcement entity; or

2. Any City entity from responding to a valid and lawful request for government records pursuant to Chapter 610 of the Revised Statutes of Missouri (the "Missouri Sunshine Law").

C. In the event a City entity operates an approved real-time crime center (RTCC) jointly with other counties or municipalities, nothing in this Act shall be deemed to restrict the RTCC's receipt or sharing of surveillance data from or with non-City entity operators, or its use of surveillance technologies to analyze or process non-City entity-provided data for the benefit of non-City entities. Rather, with respect to jointly operated RTCCs, this Act shall only prohibit city entities from (1) providing, receiving, or reviewing surveillance data that was collected produced by, or derived from a surveillance technology that has not been approved by the Board of Alderman pursuant to this Act, and (2) permitting or allowing City entity-provided data to be analyzed or

processed using a surveillance technology that has not been approved by the Board of Alderman pursuant to this Act.

D. Once approval for a surveillance technology use plan has been obtained, it applies throughout the procurement or budgeting process.
(Ord. No. 71842, § 2, 5-1-2024.)

15.192.030 Surveillance use plan ("SUP") and timing of review, hearings, and votes.

A. As a part of the process of seeking Board of Aldermen approval pursuant to Section 15.192.020, a City entity shall submit to the Board of Aldermen and make publicly available a surveillance use plan concerning the surveillance technology at issue. No approval of the acquisition or use of surveillance technology by a City entity pursuant to Section 15.192.020 shall be permitted without the Board of Aldermen's express approval of the related surveillance use plan. The Board of Aldermen may request review and recommendations from the Civil Rights Enforcement Agency (CREA), Division of Civilian Oversight, the Information Technology Department, the City Counselor's Office, or a functionally equivalent City organization prior to voting on a surveillance technology approval resolution and related surveillance use plan.

1. Resolutions and related surveillance use plans for the approval of new surveillance technologies may only be submitted to the Board of Aldermen between September 1 through January 15.

B. Prior to a vote on the resolution containing a surveillance use plan, the committee may request revisions be made by the submitting City entity as outlined in Section 15.192.030.C, to be considered as amendments at the next regularly scheduled or specially called committee meeting.

C. Upon submission of the SUP to the Clerk of the Board of Alderman and the respective committee chair, the President of the Board of Alderman shall assign the resolution with the SUP attached to the committee. The President of the Board shall make these assignments in a timely manner, so as they may be announced by the Clerk, no later than the second, subsequent regular meeting that the resolution was introduced.

1. Pursuant to Section 15.192.030.E, the resolution and the initial SUP shall be publicly noticed for twenty-one (21) days before a committee hearing is held to discuss the resolution and the SUP. The committee hearing, at which the opportunity for public testimony shall be required, shall be held within fourteen (14) days of the expiration of the public notice period.

2. After public testimony is taken on the resolution and the SUP pursuant to Sections 15.192.030.C.1 and 10, the committee shall take a vote on the resolution and SUP within fourteen (14) days, unless the committee requests additional information from the City entity or makes or requests changes to the resolution or SUP.

3. If the committee requests more information from the City entity or changes to the resolution or SUP, the City entity shall have a maximum of thirty (30) days to submit the requested information and changes and to provide the committee with comments on the proposed changes to the resolution or SUP. The City entity may request an extension beyond thirty (30) days by sending such request to the Chair of the committee and the Clerk of the Board with the date that the City entity will provide the requested information, documentation, or changes.

4. Upon receipt of the information, changes, and/or comments provided by the City entity, the committee shall make the provided information, changes, and comments available to the public, at a designated page on the City website.

5. The committee shall call a hearing within fourteen (14) days to review the information, changes, and/or comments provided by the City entity and take public testimony.

6. After public testimony is taken on the resolution and SUP pursuant to Section 15.192.030.C.5 and 10, the committee shall take a vote on the resolution and SUP within fourteen (14) days.

7. If the resolution and SUP are approved by the committee, the resolution and SUP shall advance to the full Board of Aldermen for a final vote, which shall be taken within thirty (30) days.

8. If the resolution and SUP are not approved by either the committee or the full Board of Aldermen:

a. Any existing contract involving a surveillance technology that was not approved for use pursuant to this chapter may continue to be honored in accordance with the terms of the contract and any ongoing criminal investigation utilizing said technology may continue until the investigation has concluded, but immediately cease once that investigation ends. However, the

surveillance technology shall not be used in future investigations upon the disapproval of the Board of Alderman.

b. The surveillance technology that was not approved may not be used, even if funds have been allocated for its acquisition, use, operation, or maintenance, including by the Board of Estimate and Apportionment.

9. Weekdays on which the Board of Aldermen is in recess, and weekend days following a Friday on which the Board of Aldermen is in recess, shall not count toward the time periods in Section 15.192.030.C that pertain to committee or Board of Aldermen hearings and votes.

10. All resolutions covered by this chapter shall be properly noticed pursuant to Chapter 610 of the Revised Statutes of Missouri ("Missouri Sunshine Law") before a committee hearing is held to discuss the resolution. Public testimony shall be required at all hearings mandated under Section 15.192.030.C if members of the public appear to give testimony or submit written testimony.

D. Surveillance use plan: A surveillance use plan submitted pursuant to this section shall be a publicly released, legally enforceable written report that includes, at a minimum, the following:

1. *General description.* Information describing the surveillance technology and how it works, including product descriptions from manufacturers.

2. *Purpose.* What specific purpose(s) the surveillance technology is intended to advance.

3. *Authorized use(s).* For what specific capabilities and uses of the surveillance technology is authorization being sought, including amounts to be acquired and deployed, expected geographic areas and durations, organizational partnerships, and Memorandums of Understanding (MOUs) and:

a. What legal and procedural rules will govern each authorized use, including where an application of surveillance technology requires a warrant;

b. What potential uses of the surveillance technology will be expressly prohibited; and

c. How and under what circumstances will surveillance data that was collected, captured, recorded, or intercepted by the surveillance technology be analyzed and reviewed.

4. *Deployment.* If the surveillance technology will not be uniformly deployed or targeted throughout the city, what factors will be used to determine the specific geographic targeting, and what measures will be taken to ensure such targeting is racially and economically neutral.

5. *Cost.* The fiscal impact of the surveillance technology, including costs of technology acquisition, operation, maintenance, personnel, and data storage, as well as all sources of funding and donations.

6. *Discriminatory impact avoidance.* What specific, affirmative measures will be implemented to safeguard the public from the potential discriminatory impacts of the technology, including without limitation what measures will be used to avoid biases in surveillance targeting and data collection.

7. *Data collection.*

a. What types of surveillance data will be collected, captured, recorded, intercepted, or retained by the surveillance technology;

b. What surveillance data may be inadvertently collected during the authorized uses of the surveillance technology, and what measures will be taken to minimize the inadvertent collection of data; and

c. How inadvertently collected surveillance data will be expeditiously identified and deleted.

d. How the City entity will ensure that, when it retains surveillance data, such retention will be in compliance with Section 15.192.030.D.9 of this chapter, and that when it collects surveillance data, it (1) shall not collect surveillance data concerning an individual where there is no reasonable suspicion that the individual is involved in criminal conduct or activity and the information is relevant to that criminal conduct or activity and (2) shall not collect criminal intelligence information about the political, religious or social views, associations, or activities of any individual or any group, association, corporation, business, partnership, or other organization unless such information directly relates to criminal conduct or activity and there is reasonable suspicion that the subject of the information is involved in criminal conduct or activity.

8. *Data protection.* What safeguards will be used to protect surveillance data from unauthorized access, including encryption and access control mechanisms, and what protocols will be put in place to authorize access and monitor who has access.

9. *Data retention.* What rules and procedures will govern the retention and deletion of surveillance data, including how it will be ensured that the schedule for retaining and deleting data aligns with the guidelines specified in RSMo 109.200—109.310 and how data

collected by the City entity as a result of the use of surveillance technology shall be stored in a manner such that it cannot be modified, destroyed, accessed or purged contrary to the Missouri Police Clerks records retention schedule.

10. *Surveillance data sharing.* If a City entity is seeking authorization to share access to surveillance technology or surveillance data with any other persons, city entities, or governmental entities, it shall detail:

a. Which persons, City entities, or other governmental entities will be approved for (i) surveillance technology sharing, and for (ii) surveillance data sharing;

b. How such sharing is necessary for the stated purpose and use of the surveillance technology;

c. How will it ensure any person, City entity, or other governmental entity approved for access to the surveillance technology or surveillance data complies with the applicable surveillance use plan and does not further disclose the surveillance data to unauthorized persons and entities; and

11. *Demands for Access to Surveillance Data.* What legal standard must be met by government entities or third parties seeking or demanding access to surveillance data.

12. *Training.* What training procedures will be implemented to ensure compliance with this chapter, the Revised Code of the City of St. Louis, and applicable federal and state laws and regulations.

13. *Auditing and oversight.* What mechanisms will be implemented to ensure the surveillance use plan is followed, including what independent or non-independent persons or entities will be given oversight authority, and what legally enforceable sanctions will be put in place for violations of the plan.

14. *Complaints.* What procedures will be put in place by which members of the public can register complaints or concerns, or submit questions about the deployment or use of a specific surveillance technology, and how the City entity will ensure each question and complaint is responded to in a timely manner.

E. In no event will access to surveillance technology be permitted to investigate, analyze, review, or gather information solely concerning any action or speech protected by the First Amendment to the United States Constitution. Additionally, in no event will access to surveillance technology be permitted to investigate, analyze, review, or gather information protected under HIPAA.

F. The committee hearing required pursuant to Section 15.192.020 may not be held until the required surveillance use plan has been available to the public, at a designated page on the City website, for a period of at least twenty-one (21) calendar days.

G. Open records: All complete and unredacted surveillance technology use plans shall be considered "open records" as permitted under the Missouri Sunshine Law.

H. Exceptions: Unless limitations are set forth in the surveillance technology use plan, the acquisition of additional units of surveillance technology, or the replacement of existing technology with like-kind units shall not be considered a modification to a plan requiring approval subject to the approval procedures of this chapter.

(Ord. No. 71842, § 3, 5-1-2024.)

15.192.040 Review of preexisting uses mandatory.

No later than one hundred fifty (150) days following the effective date of this chapter, any City entity seeking to continue the use of any surveillance technology that was in use prior to the effective date of this chapter, or the sharing of surveillance data therefrom, must commence a Board of Aldermen approval process in accordance with Section 15.192.020, and upon receipt of the required resolution and SUP, the Board of Aldermen must initiate the approval review process in accordance with the procedures and timelines set forth in Section 15.192.030. During this review process, the City entity may continue the use of the surveillance technology, until the technology is approved or rejected during the review process in accordance with Section 15.192.030.

(Ord. No. 71842, § 4, 5-1-2024.)

15.192.050 Lead entity identification.

If more than one (1) City entity will have access to the surveillance technology or surveillance data, a lead City entity shall be identified. The lead City entity shall be responsible for maintaining the surveillance technology and ensuring compliance with all related laws, regulations, and protocols.

(Ord. No. 71842, § 5, 5-1-2024.)

15.192.060 Standard for approval.

The Board of Aldermen shall only approve a request to fund, acquire, or use a surveillance technology if it determines the benefits of the surveillance technology outweigh its costs, that the proposal will safeguard

civil liberties and civil rights, and that the uses and deployments of the surveillance technology will not be based upon discriminatory or viewpoint-based factors or have a disparate impact on any community or group. During such analysis, the Board of Alderman shall decide on the approval of surveillance technology based on their compliance with the requirements of this chapter, notwithstanding the potential availability of third-party funding. To assist the public in participating in such an analysis, all approved surveillance use plans shall be made available to the public, at a designated page on the relevant City entity's public website, for as long as the related surveillance technology remains in use. Approval for the funding, acquisition, and/or use of a surveillance technology by the Board of Aldermen, where the risk of potential discriminatory impacts on civil liberties or civil rights has been identified in the surveillance use plan, shall not be interpreted as an acquiescence to such impacts, but rather as an acknowledgment that a risk of such impacts exists and must be proactively avoided.
(Ord. No. 71842, § 6, 5-1-2024.)

15.192.070 Annual surveillance reports.

A. For each surveillance technology approved pursuant to this chapter, the lead City entity must submit an annual report detailing its use during the preceding calendar year to the Clerk of the Board of Aldermen and Chair of the respective committee on or before February 28 of each year. All annual surveillance reports shall be considered an "open record" under the Missouri Sunshine Law as permitted by law and shall be posted on the City entity's website within five (5) days of submission for at least one (1) calendar year.

B. All annual surveillance reports shall contain the following information:

1. A summary of how the surveillance technology was used, including frequency of use, numbers deployed, and duration of use;

2. Whether and how often collected surveillance data was shared with and received from any external persons or entities, the name(s) of any recipient or entity, the type(s) of data disclosed, under what legal standard(s) the information was disclosed, and the justification for the disclosure(s);

3. Where applicable, a breakdown of where the surveillance technology was deployed geographically, by individual census tract as defined in the relevant year by the United States Census Bureau, ward boundary, neighborhood boundary, or St. Louis Metropolitan Police Department district as applicable.

4. A breakdown of how many surveillance technology deployments were utilized in pursuit of a crime/an active criminal investigation, and the classification of the offense.

5. The number of surveillance technology requests submitted by Alderpersons per ward.

6. A summary of complaints or concerns that were received about the surveillance technology with no identifying personal information;

7. The results of any internal audits, any information about violations of the surveillance use plan, and any actions taken in response;

8. A good faith effort of an analysis of any discriminatory, disparate, and other adverse impacts the use of the technology may have had on the public's civil rights and civil liberties, including but not limited to those guaranteed by the First, Fourth, and Fourteenth Amendment to the United States Constitution; and

9. For the preceding fiscal year, an annual budget spending report detailing, by line item, all expenditures on surveillance technologies and the specific sources of funding or resources, both internal and external, for surveillance technologies.

10. Total annual costs for the surveillance technology, including personnel and other ongoing costs, and what source of funding will fund the technology in the coming year.

11. For purposes of this section, "external persons and entities" shall not include specifically identifying persons acting in their individual capacities.
(Ord. No. 71842, § 7, 5-1-2024.)

15.192.080 Remedies; discipline; whistleblower protections; exclusionary rule; deletion/destruction requirement.

A. Unless prohibited by state law, federal law, the Missouri Constitution, or the Missouri Supreme Court rules and procedures, any violation of this chapter, including but not limited to funding, acquiring, or utilizing surveillance technology that has not been approved pursuant to this chapter or utilizing surveillance technology in a manner or for a purpose that has not been approved pursuant to this chapter, constitutes an injury and any person may institute any and all avail-

able civil legal proceedings, including but not limited to actions for damages in any court of competent jurisdiction to enforce this chapter.

B. Unless prohibited by state law, federal law, the Missouri Constitution, or the Missouri Supreme Court rules and procedures, a court shall award costs and reasonable attorneys' fees to the plaintiff who if they are the prevailing party in an action brought to enforce this chapter.

C. City employees or agents, except in response to a declared municipal, state, or federal state of emergency, shall not use any surveillance technology except in a manner consistent with policies approved pursuant to the terms of this chapter.

D. Should an employee or agent of a City entity violate any provisions of this Act, the City entity shall take appropriate disciplinary action against the employee or agent, subject to and in accordance with the provisions of the RSMo 590.502, RSMo 84.341, Civil Service Rule IX, and all applicable Department of Personnel Regulations.

E. Whistleblower protections: In accordance with provisions of Civil Service Rule IX, Chapter 15.14 of the City Code, and all applicable Department of Personnel Regulations, no City entity or anyone acting on behalf of a City entity may take or fail to take, or threaten to take or fail to take, a personnel action with respect to any employee or applicant for employment, including but not limited to discriminating with respect to compensation, terms, conditions, access to information, restrictions on due process rights, privileges of employment, or civil or criminal liability, because the employee or applicant was perceived to, about to, or assisted in any lawful disclosure of information concerning the funding, acquisition, or use of a surveillance technology or surveillance data to any relevant city agency, city law enforcement, prosecutorial, or investigatory office, or Alderman, based upon a good faith belief that the disclosure evidenced a violation of this chapter.

F. Exclusionary rule; deletion/destruction requirement: Unless prohibited by state law, federal law, the Missouri Constitution, the Missouri Supreme Court rules and procedures:

1. Any data or other information created or collected in contravention of this chapter, and any data or information derived therefrom, shall be immediately deleted and destroyed, and may not:

a. Be offered as evidence by any City government entity, agency, department, prosecutorial office, or any other subdivision thereof, in any criminal or civil action or proceeding against any member of the public, except as evidence of the violation of this chapter; or

b. Be voluntarily provided to another person or entity for use as evidence or for any other purpose.

2. Notwithstanding the above, if, upon the discovery of data or other information that was created or collected in contravention of this chapter, it appears such data or information may be material to the defense in a criminal prosecution, a copy of the relevant, potentially material data or other information shall be turned over to the defendant before it is deleted and destroyed, except where prohibited by local, state, or federal law.

G. Nothing in this chapter, this section, or the administration or application thereof shall be construed to create a right of action between private parties.

(Ord. No. 71842, § 8, 5-1-2024.)

15.192.090 Use of unapproved surveillance technology in exigent circumstances.

A. A City entity may temporarily acquire, or temporarily use, surveillance technology in exigent circumstances without following the provisions of this chapter provided that the City entity does all of the following:

1. Use the surveillance technology to solely respond to the exigent circumstances;

2. Cease using the surveillance technology within thirty (30) calendar days, or when the exigent circumstances end, whichever is sooner. If an exigent circumstance lasts longer than thirty (30) days, the City entity shall request an extension of no more than thirty (30) days from the Board of Aldermen. Multiple extensions may be individually requested if exigent circumstances so require;

3. Keep and maintain only data related to the exigent circumstances and dispose of any data that is not relevant to an ongoing investigation, unless its retention is:

a. Necessary to address the exigent circumstance;

b. Authorized by a court based on a finding of probable cause to believe the information constitutes evidence of a crime; or

c. Otherwise required by law;

4. Not disclose to any third party any information acquired during exigent circumstances unless such disclosure is:

a. Authorized by a court based on a finding of probable cause to believe the information constitutes evidence of a crime; or

b. Otherwise required by law; and

5. Within forty-five (45) days of the conclusion of the exigent circumstances submit a written report to the Board of Aldermen identifying the exigent circumstances and the surveillance technology acquisition and/or use;

B. Any surveillance technology temporarily acquired in exigent circumstances shall not be used following the end of exigent circumstances unless approved by the Board of Aldermen pursuant to Section 15.192.030.

(Ord. No. 71842, § 9, 5-1-2024.)

Title 16

PRISONERS AND EX-CONVICTS

Charter:

Art. I § 1(32) Public institutions and services

Art. I § 1(34) Fines, forfeitures and penalties

Art. XIII § 14-A(c) Division of adult services

Chapters:

16.04 **Parole Committee**

16.08 **Probation**

16.12 **City Jail**

16.16 **City Workhouse**

16.20 **Female Inmates**

16.24 **Serving Time Intermittently**

16.28 **Credit Toward Service of Sentence**

16.30 **Access of Correctional and Detention Facilities by Attorneys**

Chapter 16.04

PAROLE COMMITTEE

City Counselor Ops.: 9001

Sections:

16.04.010 **Membership.**

16.04.020 **Terms.**

16.04.030 **Organization—Rules.**

16.04.040 **Chief Parole and Probation Officer.**

16.04.050 **Meetings—Quorum.**

16.04.060 **Recommendations for parole.**

16.04.070 **City Workhouse inspection.**

16.04.080 **Reports—Rights of access.**

16.04.090 **Parole and probation officers—Bonds.**

16.04.100 **Parole and probation officers—Duties.**

16.04.010 Membership.

A Parole Committee consisting of three members of the Board of Adult Welfare Services, as designated in the City Charter, Section 14A(e), shall have authority to grant paroles to any persons convicted before one of the City Courts. (1960 C., § 178.010; 1994 C., § 16.04.010; Ord. No. 49569, § 1, 1959.)

16.04.020 Terms.

The terms of office of the members of the Parole Committee shall be for such period of time as designated by the Board of Adult Services, but in no event shall the term of any member of the Parole Committee exceed the time remaining for the designated member's term on the Board of Adult Services. (1960 C., § 178.020; 1994 C., § 16.04.020; Ord. No. 49569, § 2, 1959.)

16.04.030 Organization—Rules.

The Parole Committee shall, as soon as practicable after its appointment, organize by the selection of one of its members as Chairman, who shall preside at all meetings of the Parole Committee and who shall have authority to delegate to either the Commissioner of Adult Services or to the Chief Parole and Probation Officer the right and responsibility of signing all requisitions for supplies and drafts upon any fund appropriated for the Parole Committee's use. The Parole Committee shall adopt a set of rules for its government generally and setting standards determining its granting of paroles. (1960 C., § 178.030; 1994 C., § 16.04.030; Ord. No. 49569, § 3, 1959.)

16.04.040 Chief Parole and Probation Officer.

The Commissioner of Adult Services shall appoint the Chief Parole and Probation Officer and as many stenographers and assistant parole and probation officers as necessary to perform the duties of the investigation of, and report concerning all cases referred for parole and probation, and for the duties relating to the supervision of all persons placed on parole and probation either by the Parole Committee or by one of the judges of the City Courts. (1960 C., § 178.040; 1994 C., § 16.04.040; Ord. No. 49569, § 4, 1959.)

16.04.050 Meetings—Quorum.

The Parole Committee shall hold regular meetings at least once a month in the office of the warden of the City Workhouse. It shall hold as many special meetings as it may deem proper. Two members of the Parole Committee shall constitute a quorum for the transaction of business, and an affirmative vote of at least two of its members shall be necessary to authorize any action of the Parole Committee. (1960 C., § 178.050; 1994 C., § 16.04.050; Ord. No. 49569, § 5, 1959.)

16.04.060 Recommendations for parole.

The Commissioner of Adult Services shall have power to inquire into the nature of any case brought before one of the City Courts, and may recommend in

writing to the Parole Committee that any person convicted in the City Court be paroled by the Parole Committee. (1960 C., § 178.060; 1994 C., § 16.04.060; Ord. No. 49569, § 6, 1959.)

16.04.070 City Workhouse inspection.

The Parole Committee shall, at least once a month, visit and inspect the City Workhouse and note the manner of conducting the workhouse and the treatment accorded prisoners. The visit and inspection may take place on the same day as the Parole Committee is holding its regular monthly meeting. (1960 C., § 178.070; 1994 C., § 16.04.070; Ord. No. 49569, § 7(part), 1959.)

16.04.080 Reports—Rights of access.

The Parole Committee shall make an annual report to the Commissioner of Adult Services. The Parole Committee shall make recommendation of amendments to the ordinances governing parole and probation as shall seem wise and expedient. The Parole Committee and the probation and parole officers shall at all times have complete access to all police stations, prisons, eleemosynary institutions and the City Jail and City Workhouse, and have the right to investigate fully, all cases of persons confined therein, and to consult with such persons at any and all times subject, however, to the rules and regulations governing the institutions. (1960 C., § 178.080; 1994 C., § 16.04.080; Ord. No. 49569, § 7(part), 1959.)

16.04.090 Parole and probation officers—Bonds.

The parole and probation officers shall give their full time to the performance of their duties. The Chief Parole and Probation Officer shall give bond to the City, to be approved by the Comptroller, in the sum of one thousand dollars, and the assistant parole and probation officers shall give a bond in the sum of five hundred dollars each, all of the bonds being conditioned on faithful performance of all the duties of the respective officers. (1960 C., § 178.090; 1994 C., § 16.04.090; Ord. No. 49569, § 8, 1959.)

16.04.100 Parole and probation officers—Duties.

The parole and probation officers appointed pursuant to this chapter shall not only perform the duties prescribed in this chapter, but shall also perform the duties assigned to them by a judge of the City Courts under authority of an ordinance establishing a system of probation in the City Courts, and defining the powers and duties of the courts and of the parole and probation officers in relation to the same and providing for the detention of habitual delinquents with a view to reform and cure. (1994 C., § 16.04.100; Ord. No. 49569, § 9, 1959.)

For city courts, see Ch. 3.08.

Chapter 16.08

PROBATION

Sections:

16.08.010 City court powers.
16.08.020 When allowed.
16.08.030 Termination.
16.08.040 Conditions.
16.08.050 Reserved.
16.08.060 Probationer—Defined—Duties.
16.08.070 Discharge—Granting.
16.08.080 Discharge—Payment of fines and costs.
16.08.090 Pending appeal.
16.08.100 Powers of parole and probation officers.

16.08.010 City court powers.

The City Courts shall have power to place on probation, under the charge and supervision of officers to be known as parole and probation officers, persons convicted of a violation of any of the City ordinances. The officers shall be the parole and probation officers appointed under authority of Chapter 16.04 by the Commissioner of Adult Services. (1948 C., Ch. 52, § 11; 1960 C., § 179.010; 1994 C., § 16.08.010; Ord. No. 49570, § 1(part), 1959.)

16.08.020 When allowed.

When any person of previous good character shall be convicted of a violation of a City ordinance and a fine shall have been imposed therefor, the City Court before which the conviction was had, if satisfied that the person, if permitted to go at large, will not again violate the laws, may in its discretion by order of record recall the issuance of, or stay, the execution for a period of time and on terms and conditions as it shall determine and place the person on probation under the charge and supervision of a parole and probation officer during the stay of execution. Upon satisfying the execution either by paying the same in money or by discovering to the City Marshal sufficient goods or chattels the property of the person, whereupon to levy

the execution for debt and costs, the judgment shall be deemed satisfied and the probation cease, and the record in the court shall so show. The court may permit the persons to go and remain at large until the period of probation is terminated; provided, further, that the court shall not have power to recall any execution after the convicted person has been confined in the workhouse. (1948 C., Ch. 52, § 12; 1960 C., § 179.020; 1994 C., § 16.08.020.)

City Counselor Ops.: 10136

16.08.030 Termination.

When any person shall be placed on probation under Section 16.08.020, the court granting the probation, or the judge thereof in vacation, may terminate the probation at any time without notice to the person by simply directing the clerk of the court to issue execution on the judgment and to deliver the same to the City Marshal together with a certificate that the person has been on probation, and that his probation has been terminated, and it shall be the duty of the City Marshal upon receipt of the execution and certificate immediately to arrest the person and to deliver him to the person appointed to convey prisoners to the workhouse, in the same manner as if no probation had been granted, and it shall be deemed a condition upon which any person accepts the benefits of being placed under probation in accordance with this chapter that the time that the person shall have been at large upon probation shall not be deducted from the time to be served by him in working out any fine imposed upon him nor counted as a part of the term of his imprisonment, but the time for his imprisonment shall be calculated from the date of his delivery to the warden of the City Workhouse. (1948 C., Ch. 52, § 13; 1960 C., § 179.030; 1994 C., § 16.08.030.)

City Counselor Ops.: 10136

16.08.040 Conditions.

When a City Court stays the issuance of, or recalls its execution against any person and places the person on probation, it shall determine the conditions and period of probation, which shall be such as the court shall in its discretion prescribe. The court, or the judge thereof, may modify the conditions and period of probation and may at any time discharge the probationers from further custody. Should a probationer evade surveillance or depart from the jurisdiction of the court without permission of the court or the judge thereof, the time during which the probationer keeps his whereabouts concealed or remains outside the jurisdiction of the court shall not be deducted from his term of probation nor count as a part thereof. The probationer shall enter into such promises and conditions as may be imposed by the court, under oath administered either by the court or the clerk thereof, and under the seal of the court provided for such purposes, and a copy of the promises and conditions shall be furnished to the probationer. (1948 C., Ch. 52, § 14; 1960 C., § 179.040; 1994 C., § 16.08.040.)

16.08.050 Reserved.

Editor's Note:

Ord. No. 71934, § 7, approved November 26, 2024, amended the Code by repealing former § 16.08.050, which pertained to habitual delinquents, and derived from the 1948 Code, Ch. 52, § 15; the 1960 Code, § 179.050; and the 1994 Code, § 16.08.050.

16.08.060 Probationer—Defined—Duties.

The term "probationer" shall mean a person placed on probation. It shall be the duty of the probationer under the provisions of Section 16.08.020 to appear during the continuance of the term of probation, as often and when and where the court shall direct, and give satisfactory evidence to the judge or to the parole and probation officer thereof that he is complying with all the conditions of such probation and living as a peaceable and law-abiding citizen. (1948 C., Ch. 52, § 16; 1960 C., § 179.060; 1994 C., § 16.08.060.)

16.08.070 Discharge—Granting.

When any person who has been placed on probation under the foregoing provisions of this chapter shall have been at large during the entire term of the probation and the court granting the probation shall be satisfied that the reformation of the person is complete and that he will not again violate the law, the court may in its discretion by order of record grant the person an absolute discharge. The order of discharge shall recite the fact that the person has earned the discharge by good behavior. (1948 C., Ch. 52, § 17; 1960 C., § 179.070; 1994 C., § 16.08.070.)

16.08.080 Discharge—Payment of fines and costs.

It shall be the duty of the court to require the probationer to pay to the City Marshal the costs that have accrued in the cause and also to pay, before his final discharge, any fine or part of fine that has been

imposed by the court as a condition of the probation. (1948 C., Ch. 52, § 18; 1960 C., § 179.080; 1994 C., § 16.08.080.)

16.08.090 Pending appeal.

No probation shall be granted in any case while an appeal is pending in such case. (1948 C., Ch. 52, § 19; 1960 C., § 179.090; 1994 C., § 16.08.090.)

16.08.100 Powers of parole and probation officers.

Every parole and probation officer may require reports from probationers under his care as are reasonable and necessary and not inconsistent with the conditions imposed by the court or judge, and whenever any person is placed on parole by the Mayor pursuant to Section 1 of Article VII of the Charter or by the Parole Committee of the City, or on probation by one of the City Courts, or by a judge thereof in vacation, and the person violates any one of the terms or conditions of his parole or of his probation, and the terms of the parole or the terms of the probation are known by any parole or probation officer who sees the violation thereof, the parole and probation officer shall have the power and authority forthwith to arrest the person so violating his parole or probation and to deliver the person into the custody of the City Marshal for the execution of the judgment against the person; but the City Marshal shall first bring the person before the court or judge that originally imposed the fine upon the person or which originally granted him probation. If the court or judge shall, upon hearing, find the fact to be that he has violated the terms or conditions of his parole or probation, then the City Marshal shall, upon the written order of the court or judge, proceed in the execution of the judgment against the person. In case the violation of the terms or conditions of such parole or probation is not observed in person by any parole or probation officer but in any way is made known to the Mayor or to the Parole Committee who granted the parole, or to the court or the judge who granted the probation, the same may be revoked by the person or authority who granted the same and without notice to the person paroled or on probation and upon written order from the person or authority so revoking the parole or probation, any parole and probation officer may arrest a violator of his parole or probation, as aforesaid, and deliver the person into the custody of the City Marshal for the execution of the judgment against him; but the City Marshal shall first bring the person before the court or judge that originally imposed the fine upon the person, or which originally granted him probation, and if the court or judge shall upon hearing find the fact to be that he has violated the terms or conditions of his parole or probation, then the City Marshal shall, upon the written order of the court or judge, proceed in the execution of the judgment against the person. Every person who accepts a parole by the Mayor or the Parole Committee, or the benefit of being placed on probation by one of the City Courts, or by a judge thereof in vacation, shall be deemed to have accepted the conditions of this section as to arrest by a parole and probation officer and revocation of parole or probation as one of the conditions on which the clemency has been granted to him. (1948 C., Ch. 52, § 20; 1960 C., § 179.100; 1994 C., § 16.08.100; Ord. No. 49570, § 1(part), 1959.)

Chapter 16.12

CITY JAIL

Sections:

16.12.010 Warden—Appointment.
16.12.030 Board fee.
16.12.040 Title.
16.12.050 Definitions.
16.12.060 Permitted accessors to city detention facilities.
16.12.070 Penalty for violation.

16.12.010 Warden—Appointment.

The Commissioner of Adult Services is authorized to appoint in accordance with the City Charter and City ordinances a warden and other subordinates for the conduct and management of the municipal jail. (1948 C., Ch. 52, § 21; 1960 C., § 208.010; 1994 C., § 16.12.010; Ord. No. 49568, § 1, 1959.)

Cases:

Jailer of city of St. Louis held entitled to custody of city jail as against sheriff of city. *Lefman v. Schuler,* 296 S.W. 808 (1927).

Injunctive relief granted to federal prisoners in St. Louis city jail to prevent certain prison practices. *Johnson v. Lark,* 365 F. Supp. 289 (E.D.Mo., 1973).

16.12.030 Board fee.

The fee for furnishing each prisoner in the City Jail with board during the calendar year 1968 is fixed at the rate of three dollars for each day. (1960 C., § 208.030; 1994 C., § 16.12.030; Ord. No. 55034, § 1, 1968; Ord. No. 54628, § 1, 1967; Ord. No. 50121, § 1, 1960; Ord.

No. 49344, § 1; 1959; Ord. No. 48246, § 1, 1957; Ord. No. 47773, § 1, 1956; Ord. No. 47395, § 1, 1955; Ord. No. 46824, § 1, 1953; Ord. No. 46599, § 1, 1953; Ord. No. 46205, § 1, 1952; Ord. No. 45847, § 1, 1951; Ord. No. 45191, § 1, 1950; Ord. No. 44731, § 1, 1948.)

16.12.040 Title.

Sections 16.12.040—16.12.070 shall be known as the "Correctional and Detention Facilities Access Act." (Ord. No. 71878, § 1, 7-31-2024)

16.12.050 Definitions.

Access means a physical appearance within a Detention Facility.

Authorized Individual means employees of the Division of Corrections and the Department of Public Safety; the Mayor; the President and members of the Board of Aldermen; municipal and circuit court judges; the City Counselor; and members and staff of commissions and oversight boards related to oversight of Detention Facilities. Supervisees of all above-named authorized individuals, who in their official and regular capacity are employed or work for an authorized individual, shall be authorized to access correctional centers as long as their supervisor is present. the total number that an authorized individual may bring into a facility shall not exceed four (4) other individuals, who shall be any clergymen of every recognized denomination, attorneys, or supervisees, with them when they visit the Detention facility.

Clergy means a duly-ordained minister, clergy person, religious worker, or faith-based practitioner of any denomination while functioning in their ministerial capacity.

Detention Facility means any jail, detention, or correctional facility owned or operated by the City, or any jail, detention, or correctional facility owned or operated by another party where detainees are housed for the City.
(Ord. No. 71878, § 2, 7-31-2024)

16.12.060 Permitted Accessors to City Detention Facilities.

A. Except as provided in subsection B and C of this section, no person shall be permitted to access a detention facility except by special permission given by the Mayor, the Director of the St. Louis Department of Public Safety, the Commissioner of the St. Louis Corrections Division, the Warden of the detention facility, by any relevant policies of the aforementioned officers, or by any other permissions granted by ordinances.

B. An authorized individual may access a detention facility every day between the hours of 8:00 a.m. and 7:00 p.m. without restrictions or advance notice. Access for an authorized individual between the hours of 7:00 p.m. and 8:00 a.m. may be arranged with the Commissioner or Sheriff with at least one (1) hour's notice provided by the authorized individual. Notice may be provided by telephone call to the detention facility, Office of the Commissioner, or Sheriff's Office, or by electronic mail or request where available. No physical space within or around the detention facility shall be off limits to an authorized individual who is accessing the detention facility, unless there is a demonstrable and significant emergency or unless medical services are actively being provided to a detainee. In the showering area, authorized individuals may not enter that area while a detainee is using the area.

C. An authorized individual shall be permitted to ask detainees about the conditions of the detention facility and treatment by staff, but an authorized individual may not ask a detainee about any individual litigation that they may be pursuing.

D. In the event that an authorized person is denied access to any space within a detention facility the Commissioner of the Department of Corrections shall notify such person in writing that their access has been denied and the specific reasons why their access was denied. Said notice shall be considered an open, public record and subject to disclosure as provided for public records in Missouri's Sunshine Law, Chapter 610 of the Revised Missouri Statutes. The Division of Corrections shall have thirty (30) days to promulgate a standardized form that documents denials from the time the ordinance from which these sections derives takes effect.
(Ord. No. 71878, § 3, 7-31-2024)

16.12.070 Penalty for Violation.

A. An authorized individual aggrieved under this section may initiate any petition, motion, writ, or other legal action in the Twenty-Second Judicial Circuit Court, naming a detention facility staff member not acting under the direction of the Commissioner or Sheriff as the defendant. If a judge of the Twenty-Second Judicial Circuit Court, adduces after a presentation of the evidence that the detention facility staff member not act-

ing under the direction of the Commissioner or Sheriff has violated the provisions under this chapter, said judge shall be authorized to assess a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) against said detention facility staff member not acting under the direction of the Commissioner or Sheriff, if they have been found to have violated these sections. The judge shall also award restitution to the aggrieved party at a reasonable rate commensurate with the prevailing party's attorney's billable rate or salary.

B. An authorized individual aggrieved under this section may initiate any petition, motion, writ, or other legal action in the Twenty-Second Judicial Circuit Court, naming a Detention Facility staff member not acting under the direction of the Commissioner or Sheriff as the defendant. If a judge of the Twenty-Second Judicial Circuit Court, adduces after a presentation of the evidence that the detention facility staff member not acting under the direction of the Commissioner or Sheriff has violated the provisions under this chapter, said judge shall be authorized to assess a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) against said detention facility staff member not acting under the direction of the Commissioner or Sheriff, if they have been found to have violated these sections. The judge shall also award restitution to the aggrieved party at a reasonable rate commensurate with the prevailing party's attorney's billable rate or salary. Employees and staff members working for the Division of Corrections or the Sheriff's Office shall receive training from the Commissioner or Sheriff to inform them of this section and potential penalties, including fines.

(Ord. No. 71878, § 4, 7-31-2024)

Chapter 16.16

CITY WORKHOUSE

Charter:

Art. IV § 24 Fines and imprisonment

Sections:

16.16.010 **Location.**

16.16.020 **Appointment of warden and subordinates.**

16.16.030 **Duties of warden.**

16.16.040 **Record of prisoners.**

16.16.050 **Account of work.**

16.16.060 **Termination of confinement.**

16.16.070 **Monthly requisitions for supplies.**

16.16.080 **Meals.**

16.16.090 **Food for guards and employees.**

16.16.100 **Executions.**

16.16.110 **Effects of prisoners.**

16.16.120 **Employment of prisoners.**

16.16.130 **Sale of brooms and brushes made in penal institutions—Prohibited.**

16.16.140 **Sale of brooms and brushes made in penal institution—Penalty for violation.**

16.16.150 **Use of brooms and brushes.**

16.16.160 **Accounts.**

16.16.170 **Discipline.**

16.16.180 **Escapes—Notice.**

16.16.190 **Escapes—Penalty.**

16.16.200 **Forfeitures and credits of prisoners.**

16.16.210 **Credits for satisfactory work and good behavior.**

16.16.215 **Direction of felons to work assignment.**

16.16.217 **Release of working felons—Completion of three-fourths of sentence required.**

16.16.220 **Discharge.**

16.16.230 **Prisoner interviews.**

16.16.240 **Separate apartments.**

16.16.250 **Sick prisoners.**

16.16.260 **Diets.**

16.16.270 **When prisoners removed to hospital.**

16.16.280 **Venereal diseases.**

16.16.290 **Warden to report to Aldermen.**

16.16.300 **Precautions against escape—Arrest of escapees.**

16.16.310 **Trespassing on workhouse premises—Assisting escapes.**

16.16.320 **Prisoner clothing.**

16.16.330 **Record of articles received and sent.**

16.16.340 **When prisoners to be used for loading.**

16.16.350 **Pregnant inmates.**

16.16.360 **Access to menstrual products.**

16.16.010 Location.

The houses, enclosures and fixtures erected on that portion of the northeast quarter of block number eighty-five in the City Commons which lies between Jefferson Avenue and the macadamized Carondelet Road (now corner Broadway and Meramec Streets) shall and they are hereby designated to be the workhouse of the City, and shall be so known and designated. (1948 C., Ch. 52, § 24; 1960 C., § 200.010; 1994 C., § 16.16.010.)

McQuillin:

47.17 Workhouse

53.94 Jails, workhouses

16.16.020 Appointment of warden and subordinates.

The Commissioner of Adult Services is authorized to appoint, in accordance with the City Charter and the City ordinances, one warden and other subordinates for the conduct and management of the municipal workhouse, whose duties shall be those pertaining to their respective titles, and other duties as may be required of them by the Commissioner of Adult Services. (1948 C., Ch. 52, § 25; 1960 C., § 200.020; 1994 C., § 16.16.020; Ord. No. 49619, § 1(part), 1959.)

16.16.030 Duties of warden.

The warden of the workhouse shall have the control and management of the workhouse, and it shall be his duty:

A. To see that all laws and ordinances relating to the workhouse are fully and faithfully enforced;

B. To exercise a general supervision over the officers and employees connected with the workhouse and the management thereof;

C. To prescribe the kind of labor at which and the place where all the prisoners in the workhouse shall be employed;

D. To establish rules and regulations generally for the government and management of the workhouse as he may deem proper, not contrary to or inconsistent with the provisions of this chapter, and to cause the same to be printed and posted in each and every department of the workhouse;

E. To have the care and custody of the workhouse and the grounds, enclosures, fixtures, appurtenances and tools, and all property pertaining thereto, and of all persons pertaining thereto, and of all persons confined therein, and daily to visit all departments thereof and see if the same are properly cleaned and in good order;

F. To attend to the management of the prisoners and guards; to see personally that the prisoners are employed at the places and the work directed by the Board of Public Service; to see personally that the guards do their duty; to attend to the safekeeping of the prisoners; to see that the prisoners are properly lodged and fed, and to report to the Mayor at the end of each month the amount and description of work done by the prisoners, the amount of the stock on hand produced by their labor, the amount produced during the month and the amount sold during the month; the condition of the property of the City connected with the workhouse and such other facts as may be required;

G. To deliver to his successor in office all prisoners confined in the workhouse and all property of the City connected therewith. (1948 C., Ch. 52, § 26; 1960 C., § 201.010; 1994 C., § 16.16.030; Ord. No. 62894, § 1, 1993.)

16.16.040 Record of prisoners.

The warden shall receive all persons committed to the workhouse by the Marshal and register in a book, to be kept for that purpose, the name, age, height, color, place of birth of each prisoner received, and such other facts as may be necessary, and the number of times the prisoner has been committed. (1948 C., Ch. 52, § 27; 1960 C., § 201.020; 1994 C., § 16.16.040.)

16.16.050 Account of work.

The warden shall keep an accurate account of days worked by each prisoner, and also keep a daily account of the number of prisoners on hand and the work at which they have been employed. (1948 C., Ch. 52, § 28; 1960 C., § 201.030; 1994 C., § 16.16.050.)

16.16.060 Termination of confinement.

The warden shall note when the time of any prisoner is out, or such prisoner is otherwise legally entitled to his discharge, upon his books. (1948 C., Ch. 52, § 29; 1960 C., § 201.040; 1994 C., § 16.16.060.)

16.16.070 Monthly requisitions for supplies.

It shall further be the duty of the warden of the workhouse to prepare and submit at the end of each month to the Supply Commissioner a full and detailed requisition of the necessary supplies for the workhouse, such as provisions, clothing, tools, provender for horses, and other articles as may be required for the use of the institution for the next ensuing month. (1948 C., Ch. 52, § 31; 1960 C., § 201.050; 1994 C., § 16.16.070.)

16.16.080 Meals.

The warden shall also supervise the cooking and providing of meals for the prisoners and see that they have sufficiently good and wholesome food and that their sleeping apartments are properly cleaned and ventilated, and to attend to all other duties that may be required of him by the Director of Welfare and the Commissioner of Adult Services. (1948 C., Ch. 52, § 32; 1960 C., § 201.060; 1994 C., § 16.16.080; Ord. No. 50123, § 1(part), 1960.)

16.16.090 Food for guards and employees.

The warden shall provide suitable food for the guards and employees of the workhouse, and the requisitions for such food shall be made in the same manner as prescribed in Section 16.16.070, but separate accounts shall be kept by the Supply Commissioner and warden of the workhouse of the supplies furnished under this section, but no compensation therefor shall

be allowed the warden or other officers of the institution other than their lawful salaries. (1948 C., Ch. 52, § 33; 1960 C., § 201.070; 1994 C., § 16.16.090.)

16.16.100 Executions.

Whenever the Marshal shall commit any person to the workhouse, he shall endorse upon the execution the amount of money or other property that he may have in his hands, belonging to the prisoner, and shall deliver to the warden a copy of the execution under which the commitment takes place, and the endorsement thereon. The warden shall endorse a receipt for the prisoner on the execution held by the Marshal. The warden shall then enter in a book the executions and endorsements thereon, and the number of days' labor which the prisoner must give to discharge the execution and costs. (1948 C., Ch. 52, § 34; 1960 C., § 206.020; 1994 C., § 16.16.100; Ord. No. 50123, § 1(part), 1960.)

16.16.110 Effects of prisoners.

Upon receipt of any prisoner, the warden shall divest him of all articles of value, and all unnecessary wearing apparel, and all such articles shall be registered in a book and returned to the owner upon his being discharged. (1948 C., Ch. 52, § 35; 1960 C., § 206.030; 1994 C., § 16.16.110.)

City Counselor Ops.: 7866

16.16.120 Employment of prisoners.

The warden shall, so far as possible, keep all prisoners committed to the workhouse employed at useful and profitable labor as their health and strength will permit, eight hours each day; but no prisoner shall be required to work before sunrise or after sunset, except in extraordinary cases; provided, that prisoners shall not be employed on any work of the City or on any public or private work which employment takes them outside the boundaries of the workhouse property. (1948 C., Ch. 52, § 36; 1960 C., § 202.010; 1994 C., § 16.16.120.)

City Counselor Ops.: 9497, 9622

16.16.130 Sale of brooms and brushes made in penal institutions—Prohibited.

No official, either elective or appointive, nor any agent or employee of the City, shall sell, barter or exchange any brooms or brushes manufactured in whole or in part by inmates of any penal institution maintained by the City. (1948 C., Ch. 52, § 37; 1960 C., § 211.010; 1994 C., § 16.16.130.)

16.16.140 Sale of brooms and brushes made in penal institution—Penalty for violation.

Any official, either elective or appointive, or any agent or employee of the City, who shall violate any of the provisions of Section 16.16.130 shall be guilty of a misdemeanor. (1948 C., Ch. 52, § 38; 1994 C., § 16.16.140.)

16.16.150 Use of brooms and brushes.

Nothing in Sections 16.16.130 and 16.16.140 shall be so construed as to prohibit the use in any building or plants maintained, occupied or operated by the City of brooms or brushes as specified in Section 16.16.130. (1948 C., Ch. 52, § 39; 1960 C., § 211.020; 1994 C., § 16.16.150.)

16.16.160 Accounts.

The warden shall cause to be kept in proper books, a daily account of the number of prisoners on hand, and the work at which they have been employed. All bills against the workhouse shall be signed by the warden, and his accounts so certified shall be audited by the Comptroller, in the same way other accounts are audited, and he shall draw his warrant on the Treasurer for such amounts, payable out of the appropriation for the workhouse. (1948 C., Ch. 52, § 40; 1960 C., § 201.080; 1994 C., § 16.16.160.)

16.16.170 Discipline.

Any person who shall refuse to work, or who shall behave in a riotous or disorderly manner, or shall resist or attempt to escape from the workhouse, may be confined in a cell alone, which, however, shall be supplied with light and air, and may be fed on bread and water until he consents to perform his duty; but the Mayor shall have power to control the warden in the extent and manner of punishment. (1948 C., Ch. 52, § 41; 1960 C., § 203.010; 1994 C., § 16.16.170.)

City Counselor Ops.: 8065

16.16.180 Escapes—Notice.

Whenever any prisoner shall escape from the workhouse, the warden shall immediately notify the Mayor and the Chief of Police thereof and shall furnish the latter with a description of the fugitive, and a statement of the manner of escape, and if he fails so to do within twenty-four hours after the escape, he shall be liable for the amount of fines and costs due from the prisoner. (1948 C., Ch. 52, § 42; 1960 C., § 205.010; 1994 C., § 16.16.180.)

City Counselor Ops.: 8065

16.16.190 Escapes—Penalty.

Any prisoner escaping from the workhouse shall forfeit the time he may have labored therein; and upon being retaken, shall work out the whole amount for which he was originally committed, and the cost of boarding for the whole time. (1948 C., Ch. 52, § 43; 1960 C., § 205.020; 1994 C., § 16.16.190.)

City Counselor Ops.: 8065

16.16.200 Forfeitures and credits of prisoners.

Any prisoner who may be placed in solitary confinement, or may refuse to perform his task, shall not be allowed a credit for the time of such confinement or refusal, and the cost of this boarding during the time of such confinement or refusal shall be added to the amount for which he was committed, and worked out by him. If any prisoner shall be sick and unable to work, he shall be allowed his time as though he had worked, but the amount of his board shall be charged to him. If the weather should be so inclement that the prisoners cannot work, those who cannot be kept at work for that reason shall, nevertheless, be allowed a credit as though they had worked, but their board for such time shall be charged to them. (1948 C., Ch. 52, § 44; 1960 C., § 203.040; 1994 C., § 16.16.200.)

16.16.210 Credits for satisfactory work and good behavior.

The warden of the City Workhouse, subject to the approval of the Commissioner of Adult Services and of the judges of the City Courts, may establish and amend from time to time rules and regulations whereby prisoners sentenced to the workhouse for violations of City ordinances who serve in an orderly and peaceable manner according to the rules and regulations may be discharged after serving three-fourths of the time for which he may have been sentenced in the same manner as if the prisoner had served the full time for which sentenced. (1948 C., Ch. 52, § 44(a); 1960 C., § 207.010; 1994 C., § 16.16.210; Ord. No. 49619, § 1(part), 1959; Ord. No. 47771, 1956.)

16.16.215 Direction of felons to work assignment.

The correctional superintendents of the medium security institution and the City Jail, insofar as practicable, shall direct felons confined to their respective institutions after sentencing to work within their respective institution at appropriate positions. (1960 C., § 207.020; 1994 C., § 16.16.215; Ord. No. 57287, § 1, 1976.)

16.16.217 Release of working felons—Completion of three-fourths of sentence required.

After certified approval of the Commissioner of Adult Services and the correctional superintendents of the medium security institution or the City Jail that a working felon has served three-fourths of the time for which he may have been sentenced in an orderly and peaceable manner, he shall be discharged in the same manner as if the prisoner had served the full time for which sentenced. (1994 C., § 16.16.217; Ord. No. 57287, § 2, 1976.)

16.16.220 Discharge.

Any prisoner may at any time pay the warden the amount of execution and costs, or balance due thereon, after deducting credits as he may be entitled to, and upon payment, or upon any prisoner working out his fine and costs, or if he should be otherwise legally entitled to his discharge, the warden shall give the prisoner a printed or written discharge and set the same at liberty. The prisoners shall each be allowed three dollars per day for their work. (1948 C., Ch. 52, § 46; 1960 C., § 206.010; 1994 C., § 16.16.220; Ord. No. 50123, § 1(part), 1960.)

Charter:

Art. IV § 24 Fines and imprisonment

16.16.230 Prisoner interviews.

No person except the Mayor, members of the Board of Aldermen, Director of Welfare, Commissioner of Adult Services, and officers of the workhouse, shall hold any interview with any prisoner, except upon permit of the warden, Mayor, Director of Welfare, or Commissioner of Adult Services. (1948 C., Ch. 52, § 47; 1960 C., § 203.020; 1994 C., § 16.16.230; Ord. No. 50123, § 1(part), 1960.)

16.16.240 Separate apartments.

The warden shall not permit any male and female persons to occupy the same apartments. (1948 C., Ch. 52, § 48; 1960 C., § 203.030; 1994 C., § 16.16.240; Ord. No. 50491, § 1, 1961.)

16.16.250 Sick prisoners.

Whenever any prisoner is sick, the warden shall notify the Hospital Commissioner of the fact, who shall thereupon detail one of the physicians of the Hospital Department to visit the sick prisoner, and furnish the prisoner with proper medicine and medical attendance, and the warden shall see that the prisoner is properly nursed and attended, and the cost of all med-

icines, nursing and attendance shall be allowed as other expenses of the workhouse. (1948 C., Ch. 52, § 49; 1960 C., § 204.010; 1994 C., § 16.16.250.)

16.16.260 Diets.

It shall be the duty of the physician employed under the authority of Section 16.16.020 to visit the eating rooms of the prisoners of the workhouse during meal time, at least once each week or oftener if he shall deem it necessary, and he shall make a careful examination of the food furnished the prisoners, and if, in his opinion, the food of the prisoners be not sufficient or of the proper quality, he shall make to the Commissioner of Adult Services recommendations for a change of diet as may be requisite for the health of the prisoners. The Commissioner of Adult Services shall direct the warden to change the diet of the prisoners in accordance with this recommendation. The Hospital Commissioner shall also forward to the Mayor a copy of his recommendation in relation to the diet of the prisoners, and he shall also report to the Mayor any failure on the part of the warden of the workhouse in carrying out his recommendations. (1948 C., Ch. 52, § 50; 1960 C., § 204.020; 1994 C., § 16.16.260; Ord. No. 49619, § 1(part), 1959.)

16.16.270 When prisoners removed to hospital.

Whenever the warden of the workhouse is of the opinion that any prisoner confined in the workhouse is sick or injured, and cannot receive proper treatment while confined, he shall notify the Hospital Commissioner of the fact, who thereupon shall give the warden of the workhouse a receipt for the prisoner and have the prisoner removed to the City Hospital for treatment, provided that in his judgment it is proper so to do. Should the prisoner recover his health or recover from his injuries sufficiently to be able to work, he shall be recommitted to the workhouse and shall work out the remainder of his time. (1948 C., Ch. 52, § 51; 1960 C., § 204.030; 1994 C., § 16.16.270.)

16.16.280 Venereal diseases.

All persons, upon conviction of a misdemeanor for violation of any of the ordinances of the City, shall before being confined in the workhouse, be examined by the Health Commissioner, and if found to be suffering from, or having any contagious or infectious venereal disease, shall be confined in a suitable quarantine station or hospital, provided by the City for such purpose, whenever, in the opinion of the Health Commissioner it is deemed necessary. It shall be the duty of the Health Commissioner to examine all such persons as above set forth. (1948 C., Ch. 52, § 52; 1960 C., § 204.040; 1994 C., § 16.16.280.)

16.16.290 Warden to report to Aldermen.

The warden shall, at the opening of each annual session of the Board of Aldermen, report to that body a detailed statement of the operations and affairs of the workhouse, during the preceding year, setting forth the number of prisoners received, the number then at the institution, the age, sex and place of birth of all prisoners, the value and description of the work performed by them in detail and the expenditures and receipts on account of the workhouse. (1948 C., Ch. 52, § 55; 1960 C., § 201.090; 1994 C., § 16.16.290.)

16.16.300 Precautions against escape—Arrest of escapees.

The warden shall have power to take all necessary measures to guard the workhouse, and to prevent the escape of the prisoners, and he or any City officer, or other person, is authorized to arrest, without warrant, any person who shall have escaped from the workhouse. (1948 C., Ch. 52, § 56; 1960 C., § 205.030; 1994 C., § 16.16.300.)

City Counselor Ops.: 9919

16.16.310 Trespassing on workhouse premises—Assisting escapes.

The warden, or any officer of the workhouse, may arrest, without warrant, any person trespassing upon the workhouse premises, or attempting to rescue any prisoner, or assisting or attempting to assist any prisoner to escape or hindering or attempting to hinder the warden or any officer of the workhouse in the lawful discharge of any of his duties, and any person so doing shall be deemed guilty of a misdemeanor. (1948 C., Ch. 52, § 57; 1960 C., § 205.040; 1994 C., § 16.16.310.) City Counselor Ops.: 9919

16.16.320 Prisoner clothing.

Prisoners shall be furnished with suitable clothing, when necessary, at cost; provided, that they agree that the expense thereof shall be worked out by them in like manner as the amount of fine and costs for which they were committed. (1948 C., Ch. 52, § 58; 1994 C., § 16.16.320.)

16.16.330 Record of articles received and sent.

It shall be the duty of the warden to cause to be kept in a proper book a daily record of all articles

received at the workhouse, and from whom received; also a daily record of every article sent from the workhouse, and the name of the person to whom the article was furnished. (1948 C., Ch. 52, § 60; 1960 C., § 201.110; 1994 C., § 16.16.330.)

16.16.340 When prisoners to be used for loading.

It shall not be lawful to employ the prisoners confined in the workhouse in loading materials sold from the workhouse, except in cases as may be specially provided for by contract. (1948 C., Ch. 52, § 61; 1960 C., § 202.030; 1994 C., § 16.16.340.)

16.16.350 Pregnant inmates.

It shall further be the duty of Commissioner to provide for the health and well-being of pregnant inmates by:

A. Upon admission to a City Jail, while awaiting trial or after sentencing, ensuring that all female inmates, or other inmates regardless of gender identity who have the capacity to become pregnant, shall be screened and assessed for pregnancy by a licensed health care professional; provided, however, that each inmate shall be informed of any necessary medical tests connected with the pregnancy screening prior to the administration of such tests.

B. A pregnant inmate shall receive nondirective counseling and written material, in a form the inmate can understand, on pregnancy options and City Jail policies and practices regarding care and labor for pregnant inmates, including information about (A) the inmate's options with regard to her pregnancy, (B) prenatal nutrition, (C) maintaining a healthy pregnancy, (D) labor and delivery, (E) the postpartum period, (F) the institution's policies and practices regarding the care of an inmate during pregnancy, labor and delivery and the postpartum period, and (G) restrictions on the use of restraints on pregnant inmates.

C. The Commissioner shall ensure that at least one (1) member of the City Jail's medical staff is trained in pregnancy-related care, which shall include knowledge of prenatal nutrition, high-risk pregnancy, addiction and substance abuse during pregnancy and childbirth education.

D. A pregnant and/or postpartum inmate shall not be segregated or isolated unless a documented determination is made that the inmate poses a serious risk of harm to herself or others.

E. A pregnant and/or postpartum inmate shall be provided regular prenatal and postpartum medical care in City Jail, including: periodic health monitoring and evaluation during pregnancy; the opportunity for a minimum of 1 hour of ambulatory movement each day; a diet containing the nutrients necessary to maintain a healthy pregnancy as determined by a licensed health care provider trained in prenatal care, including prenatal vitamins and supplements; postpartum screening for depression; and written information regarding prenatal nutrition, maintaining a healthy pregnancy and childbirth.

F. If a departmental or contracted licensed health care provider in prenatal medical care, or any other health care professional who evaluates or treats an inmate who is pregnant, determines that the inmate's pregnancy is high risk or involves any other medical complication for either the inmate or the baby, such inmate shall be immediately transferred to the medical infirmary setting or any hospital deemed appropriate, as determined by such health care provider or professional.

G. If a pregnant or postpartum inmate needs prenatal care or other pregnancy-related care that is not available at the City Jail, she must be transported to an appropriate medical facility that can provide that care.

H. Pregnant and postpartum inmates shall be provided with the clothing, undergarments and sanitary materials deemed appropriate by a licensed health care provider who has been trained in prenatal and postpartum medical care. Postpartum inmates must also be supplied with adequate materials for pumping and storing breastmilk. The City Jail staff shall develop a lactation policy to ensure that postpartum lactating inmates have an opportunity to pump, store milk and transfer that milk in a timely manner to the person caring for and feeding the inmate's infant up until the age of one.

I. Throughout pregnancy and during post-delivery recuperation, as determined by the attending physician, an inmate shall be transported to and from visits to medical providers and court proceedings in a vehicle with seatbelts, if available. Waist restraints shall not be used on a pregnant or postpartum inmate at any time. Patients in labor shall leave and enter City Jail and any health care facility in a wheelchair to prevent falling.

J. A pregnant inmate shall receive labor and delivery care in an accredited hospital. An inmate who is in any stage of labor or delivery, as determined by a licensed health care professional, shall not have waist restraints, including during transportation. If a correc-

tion officer or sheriff is present in the room during the pregnant inmate's physical examinations, labor or childbirth, the officer shall, if possible, be female. Whenever possible, the correction officer or sheriff shall be positioned immediately outside the door or in a location in the room that will ensure, to the extent possible, patient privacy.

K. If a licensed health care professional determines that an inmate is suffering from postpartum depression, she shall have regular access to a mental health clinician.

L. City jails must also make reasonable accommodations for the provision of available doula services to inmates who are pregnant or who have given birth in the last six weeks. Persons providing doula services must be granted appropriate facility access, must be allowed to attend and provide assistance during labor and childbirth where feasible. For purposes of this section, "Doula services" are services provided by a trained doula and designed to provide physical, emotional, or informational support to a pregnant woman before, during, and after delivery of a child. Doula services may include, but are not limited to: Support and assistance during labor and childbirth; prenatal and postpartum education breastfeeding assistance; parenting education; and support in the event that a woman has been or will become separated from her child. Nothing in this section requires the Commissioner or sheriff to establish or provide funding for doula services, or prevents the Commissioner or sheriff from adopting policy guidelines for the delivery of doula services to inmates. Services provided under this section may not supplant health care services routinely provided to the inmate.

M. During post-delivery recuperation, inmates shall remain in the hospital until the attending physician certifies they may be safely discharged and transferred back to the correctional facility. An inmate in post-delivery recuperation shall not be placed in restraints, except under extraordinary circumstances.

1. For the purposes of this section, "extraordinary circumstances" shall mean a situation in which a correction officer or sheriff determines that the specific inmate presents an immediate and serious threat to herself or others or in which the inmate presents an immediate and credible risk of escape that cannot be curtailed by other reasonable means. If an inmate is restrained, the restraints shall be the least restrictive available and the most reasonable under the circumstances. Waist restraints shall not be used on a pregnant or postpartum inmate. If the attending physician or nurse treating the pregnant inmate requests that restraints be removed for medical reasons, the correction officer or sheriff shall immediately remove all restraints.

N. Nothing in this section shall prohibit the use of hospital restraints requested by a treating physician for the medical safety of a patient.

O. The Commissioner must ensure that there is a written policy specifying the details of Subsections A through M above, assigning responsibility for carrying out each section to a particular staff or set of staff, and indicating how compliance with each subsection will be monitored and deficiencies addressed. (Ord. No. 70952, § 1(16.16.350), 5-2-2019.)

16.16.360 Access to menstrual products.

The Commissioner shall have the duty of ensuring that all female and/or menstruating inmates shall be provided, upon request, with menstrual supplies as needed. Correctional staff shall provide such menstrual products for free. For purposes of this section, "menstrual products" means sanitary napkins and tampons which conform to applicable regulatory standards. (Ord. No. 70952, § 2(16.16.360), 5-2-2019.)

Chapter 16.20

FEMALE INMATES

City Counselor Ops.: 9506

Sections:

16.20.010 Transfers—When allowed.
16.20.020 Transfers—When not allowed.
16.20.030 Sentencing implies transfer.
16.20.040 Duties of warden of City Jail.
16.20.050 Copies of regulation.
16.20.060 Rescinding regulations.

16.20.010 Transfers—When allowed.

Whenever the Director of Welfare shall find that the public safety or welfare, or that the safety and welfare of inmates of the City Workhouse require that female inmates then confined in the City Workhouse be transferred from the City Workhouse to the City Jail, and that females thereafter convicted of offenses punishable by imprisonment in the City Workhouse should be sentenced to the City Jail in lieu of the City Workhouse, the Director is authorized to promulgate a reg-

ulation to that effect. (1960 C., § 209.010; 1994 C., § 16.20.010; Ord. No. 49565, § 1(part), 1959; Ord. No. 47678, § 1, 1955.)

16.20.020 Transfers—When not allowed.

Upon the effective date of any such regulation the warden of the City Workhouse shall transfer the custody of all female inmates then confined to the City Workhouse to the warden of the City Jail. When any female inmate is confined pursuant to sentence or order of the court of criminal correction of St. Louis or of the Circuit Court for criminal causes of the City no transfer shall be made unless the court imposing the sentence or making the order shall by appropriate order authorize the transfer. (1960 C., § 209.020; 1994 C., § 16.20.020; Ord. No. 47678, § 2, 1955.)

16.20.030 Sentencing implies transfer.

From and after the promulgation of regulation and during the time the regulation is in effect all females subject to imprisonment in the City Workhouse for the violation of any City ordinance shall be sentenced to the City Jail in lieu of the City Workhouse. Whenever any City ordinance prescribes punishment by imprisonment in the City Workhouse, the same as to all females convicted of violation thereof shall be deemed to authorize imprisonment in the City Jail while regulation is in effect. (1960 C., § 209.030; 1994 C., § 16.20.030; Ord. No. 47678, § 3, 1955.)

16.20.040 Duties of warden of City Jail.

It shall be the duty of the warden of the City Jail to accept the custody of females transferred from the City Workhouse pursuant to Section 16.20.020 or committed thereto pursuant to Section 16.20.030 and as to all such females the warden of the City Jail shall have all the powers and be subject to all the duties imposed upon the warden of the City Workhouse. (1960 C., § 209.040; 1994 C., § 16.20.040; Ord. No. 47678, § 4, 1955.)

City Counselor Ops.: 9622

16.20.050 Copies of regulation.

Upon the promulgation of any such regulation the Director of Welfare shall cause copies thereof to be mailed to the warden of the City Workhouse, the warden of the City Jail, the Clerk of the City Courts, the Clerk of the Court of Criminal Correction, and the Clerk of the Circuit Court for criminal causes of the City. (1960 C., § 209.050; 1994 C., § 16.20.050; Ord. No. 49565, § 1(part), 1959; Ord. No. 47678, § 5, 1955.)

16.20.060 Rescinding regulations.

Whenever the Director of Welfare shall find that the public safety or welfare or that the safety, health and welfare of inmates of the City Workhouse no longer require the transfer of female inmates from the City Workhouse to the City Jail, or the commitment of females to the City Jail, in lieu of the City Workhouse, the director is authorized to rescind any regulations then in effect. The regulations may thereafter be adopted or rescinded from time to time upon appropriate findings of the Director of Welfare. (1960 C., § 209.060; 1994 C., § 16.20.060; Ord. No. 49565, § 1(part), 1959; Ord. No. 47678, § 6, 1955.)

Chapter 16.24

SERVING TIME INTERMITTENTLY

Sections:

16.24.010 Good cause.
16.24.020 Setting order aside.
16.24.030 Written request.

16.24.010 Good cause.

The judges of the City Courts are authorized and empowered in all cases wherein persons are convicted of the violation of the City ordinances and are sentenced to imprisonment in the City Jail to permit such persons, upon application to the court and for good cause shown, to serve the sentence of imprisonment by confinement on an intermittent basis as the ends of justice may require, provided that such persons so convicted shall complete the term of imprisonment within one year of the day of the conviction. (1960 C., § 210.010; 1994 C., § 16.24.010; Ord. No. 49286, § 1(part), 1959.)

16.24.020 Setting order aside.

The judges of the courts may at any time set aside the intermittent sentence of imprisonment and order the person to serve the portion of the term remaining in consecutive days of imprisonment. (1960 C., § 210.020; 1994 C., § 16.24.020; Ord. No. 49286, § 1(part), 1959.)

16.24.030 Written request.

The Director of Welfare is authorized to recommend in writing to the court, from which any person is sentenced for the violation of a City ordinance, at any time after receipt of the person at any place of confinement under his jurisdiction, that the person be permitted to serve the sentence on an intermittent basis, as

provided in Section 16.24.010. The written recommendations shall set forth the circumstances on which the request for intermittent service is based. (1960 C., § 210.030; 1994 C., § 16.24.030; Ord. No. 56030, § 1, 1971.)

Chapter 16.28

CREDIT TOWARD SERVICE OF SENTENCE

Sections:

16.28.010 Delays in delivery.

16.28.020 City court order.

16.28.010 Delays in delivery.

Any person sentenced by the City Courts to service of a term in the City Workhouse who is kept from commencement of service of the sentence by the factual inability of the City Marshal to deliver the prisoner to the workhouse on the day of sentencing, shall be given credit toward service of the sentence for the time elapsing from the sentencing and the time of the actual delivery of his person to the workhouse. (1994 C., § 16.28.010; Ord. No. 51335, § 1, 1962.)

16.28.020 City court order.

Whenever a delay occurs in the delivery of a prisoner to the workhouse due to the inability of the City Marshal to deliver the prisoner on the day of sentencing according to the circumstance of Section 16.28.010, the Marshal shall report the fact to the judge of the sentencing City Court who shall then amend the sentence to extent of the delay by an order in writing, a copy of which shall accompany the court's judgment and be delivered to the warden of the workhouse, which officer shall treat the order as part of the judgment of the Court. (1994 C., § 16.28.020; Ord. No. 51335, § 2, 1962.)

Chapter 16.30

ACCESS OF CORRECTIONAL AND DETENTION FACILITIES BY ATTORNEYS

Sections:

16.30.010 Definitions.

16.30.020 Attorney Access to Detainees and Detention Facilities.

16.30.030 Prohibition on Retaliation.

16.30.040 Penalty for Violation—Commissioner or Sheriff.

16.30.045 Penalty for Violation—Division of Corrections or Sheriff's Office Staff Member.

16.30.010 Definitions.

Access. "Access" shall refer to the physical appearance within a detention facility.

Attorney. "Attorney" shall mean a person who is licensed to practice law in the State of Missouri or any other state. For purposes of this section, the term "Attorney" shall extend to attorney substitutes representing the attorney of record or other legally authorized attorney substitutes, as well as attorneys who have not yet been retained by a detainee.

Commissioner. "Commissioner" shall refer to the Commissioner of the Division of Corrections of the City of St. Louis, including any representative, agent, or staff member of the division.

Contact Visit. A "contact visit," also known as a "contact professional visit," shall mean a privileged meeting between an attorney and a detainee where there are no physical barriers between them.

Detainee. "Detainee" shall mean a person who is a person deprived of liberty and kept under involuntary restraint, confinement, or custody in a detention facility in the City of St. Louis.

Detention Facility. "Detention facility" shall mean any jail, detention, holding, or correctional facility owned or operated by the City, the Division of Corrections, or the Sheriff of the City of St. Louis; or any jail, detention, or correctional facility owned or operated by another party where detainees are housed for the City.

Non-Contact Visit. A "non-contact visit," also known as a "non-contact professional visit," shall mean a privileged meeting between an attorney and a detainee where there are physical barriers separating the parties and/or the attorney is meeting with the detainee inside of a "professional booth."

Professional Visit. A "professional visit" shall mean any visit specifically designed to aid in a detainee's defense or transition while in-custody. These visits include the following professionals: attorneys, legal assistants, Department of Human Services, foreign consulates, court-appointed interpreters, and mental health or medical practitioners performing assessments or evaluations.

Retaliation. "Retaliation" shall refer to any adverse action taken by a detention facility staff member against a detainee, attorney, or other detention facility staff

member based on said detainee, attorney, or staff member's role in a visit or telephone call between a detainee and attorney, inquiry, investigation, or other proceedings.

Sheriff. "Sheriff" shall mean the Sheriff of the City of St. Louis, including any representative, agent, or staff member of the Sheriff's Office.
(Ord. No. 71877, § 1, 7-31-2024)

16.30.020 Attorney Access to Detainees and Detention Facilities.

A. The provisions of this section shall apply to attorneys seeking access into a St. Louis City detention facility and visitation with detainees held in said facilities.

B. A detainee shall be permitted non-contact visits with an attorney between the professional visit hours of 8:00 a.m. and 7:00 p.m. without restrictions or advance notice. Non-contact visits outside of regular professional visit hours, or between 7:00 p.m. and 8:00 a.m., may be arranged with the Commissioner or Sheriff with at least one (1) hour's notice provided by the attorney in advance. Notice may be provided by telephone call to the detention facility, Office of the Commissioner, or Sheriff's Office, or by electronic mail where available. A copy of this chapter summary, including contact information for sending formal visitation requests outside of non-restricted contact hours, shall be posted in a conspicuous location.

C. A detention facility shall coordinate contact visits between attorneys and detainees between the hours of 8:00 a.m. and 7:00 p.m. with at least one (1) hour's notice provided by the attorney in advance. Notice may be provided by telephone call to the detention facility, Office of the Commissioner, or Sheriff's Office, or by electronic mail or electronic request where available.

D. Arrangements should be made by detention facility staff to ensure a detainee's confidentiality and privacy during visits with an attorney.

E. An attorney shall not be compelled by detention facility staff to produce documentation demonstrating that they represent a detainee held in a detention facility.

F. An attorney shall not be prohibited by detention facility staff from bringing their cellular telephone, laptop computer, cameras, or any other equipment needed for visitation with a detainee.

G. An attorney shall be permitted to pass papers and documents to a detainee during a non-contact visit.

H. A detainee being held in solitary confinement or administrative segregation shall be permitted access to an attorney without restrictions and in accordance with this section.

I. Within thirty (30) days of the effective date of this legislation, the Division of Corrections will post publicly on the City's website an email address where attorneys may email the Commissioner or Sheriff's Office regarding a contact visit or scheduling a non-contact visit after regular professional visit hours. This shall be replaced with a webform as soon as practicable (or within sixty (60) days of the effective date). Within sixty (60) days of the effective date of this legislation, the Information Technology Services Agency (ITSA) shall develop a publicly-accessible web-based form for attorneys to notify a detention facility of their intent to visit a detainee at the facility. Such form shall include, but not be limited to, the ability for an attorney to submit their name and contact information along with the date and time for a contact or non-contact visit and the name of the detainee that the attorney wishes to visit. The form shall also include the ability for the Commissioner or Sheriff to allow or deny an attorney access or a visit with a detainee, as well as space to include the reason for the Commissioner's or Sheriff's denial. The form shall be attached to any written decision by the Commissioner or Sheriff to deny access or a visit to an attorney. Such form shall be retained by the Division of Corrections and shall be considered an open, public record and subject to disclosure as provided for public records in Missouri's Sunshine Law, Chapter 610 of the Revised Missouri Statutes.

J. If an attorney is denied visitation with a detainee or access to a detention facility at the security checkpoint or point of entry, the Commissioner or the Sheriff shall provide written notice, whether physical or electronic, to such person within one (1) hour from the time of said denial, including (1) an affirmative statement that access or visitation has been denied, (2) the date and time at which access or visitation was denied, and (3) the specific reasons why access or visitation was denied. Said notice shall be considered an open, public record and subject to disclosure as provided for public records in Missouri's Sunshine Law, Chapter 610 of the Revised Missouri Statutes. An attorney may file a complaint with either the Civilian Oversight Board or the

Detention Facilities Oversight Board if they believe they have been unlawfully prohibited from accessing a detention facility or contacting or visiting a detainee. Nothing in this section shall require an attorney to file a complaint with an oversight board or exhaust administrative remedies prior to initiating litigation in the circuit court.
(Ord. No. 71877, § 1, 7-31-2024)

16.30.030 Prohibition on Retaliation.

Retaliation against a detainee, an attorney, or a detention facility staff member is prohibited.
(Ord. No. 71877, § 1, 7-31-2024)

16.30.040 Penalty for Violation—Commissioner or Sheriff.

An attorney aggrieved under this section may initiate any petition, motion, writ, or other legal action naming the Commissioner or the Sheriff as a defendant in the Twenty-Second Judicial Circuit to compel the compliance of the Commissioner or the Sheriff with this section. If a Circuit Judge, Associate Circuit Judge, Commissioner, or Magistrate adduces after a presentation of the evidence that the Commissioner or the Sheriff has violated Sections 16.030.010 to 16.30.030 under this chapter, said judge shall be authorized to assess a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) against the Commissioner or the Sheriff if they have been found to have violated these Sections. A judge shall award restitution to the aggrieved attorney at a reasonable rate commensurate with the attorney's billable rate or salary.
(Ord. No. 71877, § 1, 7-31-2024)

16.30.045 Penalty for Violation—Division of Corrections or Sheriff's Office Staff Member.

An attorney aggrieved under this section may initiate any petition, motion, writ, or other legal action naming a detention facility staff member not acting under the direction of the Commissioner or Sheriff as a defendant in the Twenty-Second Judicial Circuit to compel the compliance of the detention facility staff member with this section. If a circuit judge, associate circuit judge, commissioner, or magistrate of the Twenty-Second Judicial Circuit adduces after a presentation of the evidence that a detention facility staff member not acting under the direction of the Commissioner or Sheriff has violated Sections 16.030.010 to 16.30.030 under this chapter, said judge shall be authorized to assess a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) against said staff member(s) if they have been found to have violated these sections. A judge may award restitution to the aggrieved attorney at a reasonable rate commensurate with the attorney's billable rate or salary.
(Ord. No. 71877, § 1, 7-31-2024)

Title 17

VEHICLES AND TRAFFIC

Chapters:

Division I. Traffic Code

17.02 Definitions

17.04 Traffic and Transportation Administrator

17.06 Enforcement and Obedience

17.07 Automated Camera Enforcement Systems

17.08 Traffic-Control Devices

Part I. In General

Part II. Traffic Regulations

17.10 Speed Regulations

17.12 Turning Movements

17.14 Emergency Vehicles

17.16 Miscellaneous Traffic Rules

17.18 Motorcycles and Motorized Bicycles

17.20 Pedestrians' Rights and Duties

17.22 Loading Zones and Entrance Clearances

17.23 Commercial Vehicle Loading

17.24 Parking

17.25 Valet Parking Zones

17.26 Election Day Parking

17.28 Street Cleaning

17.30 Trucks

17.32 Equipment Required on Vehicles

17.34 Traffic Violation Bureau

17.36 Bicycles and Similar Devices

17.37 Motorized Scooters

17.38 Snow Emergency

17.40 Penalties

Division II. Miscellaneous Provisions

17.50 Pedestrian Travel

17.52 Vehicle Licenses

17.53 Operation of Motor Vehicles Without Maintaining Financial Responsibility

17.54 Repossession of Vehicles

17.55 Cruising

17.56 Vehicle Towing Code

17.58 Parking of Vehicles Underneath City Hall and Municipal Courts Building

17.60 Parking of Vehicles on Grounds of Juvenile Detention Center

17.61 Parking on Rutger Street

17.62 Parking Meters

17.63 Parking Violations—Incapacitation of Vehicle by City

17.64 Limited Access Streets

17.66 Restricted Use on Locust Street

17.68 Regulation of Trucks by Weight

17.69 Vehicles Transporting Flammable Liquids

17.70 Parking in Forest and Wilmore Parks

17.71 Reserve Parking for Circuit Attorney's Office Vehicles

17.72 Reserve Parking for Police Vehicles

17.73 Parking of Recreational Motor Vehicles

17.74 Overdimensional Vehicles

17.75 Parking for Excise Division Investigators

17.76 Parking for Disabled Persons

17.77 Space Requirements for Disabled Parking

17.78 Vehicle Noise

17.79 Parking for Neighborhood Stabilization Officers and Business Assistance Specialists

17.80 Overnight Parking of Recreational Vehicles

17.82 Child Passenger Restraint Systems

17.83 Wireless Telephones

17.84 Safety Belts

17.86 Bridge Toll Gates

17.88 Parking-Stacking Devices

17.90 Central West End North Residential Parking District

17.91 Hartford Street Residential Parking District

17.92 Waterman/DeGiverville Residential Parking District

17.93 Parking in the Third Ward

17.94 Motor Vehicles Used to Facilitate Violations

17.95 Maryland Avenue Parking District

17.96 Parking for Division of Health Employees

17.97 Parking Around Mel Carnahan Courthouse

17.98 Parking of Medical Examiners' Vehicles

17.99 Parking Commission Finance Corporation

17.100 O'Fallon Park/West Florissant Residential Parking District

17.101 Buckingham Court Residential Parking District

17.102 Laclede-Forest Park-Newstead Parking District

17.103 Forest Park Southeast Parking District

17.104 Reserved

17.106 Ford Building Residential Parking District

17.110 5800 Block of St. Louis Avenue Residential Parking District

17.115 1600 Block of Belt Avenue Residential Parking District

17.120 2200 Block of Thurman Avenue Residential Parking District

17.125 4200—4400 Blocks of North Euclid Avenue Residential Parking District

17.130 5000 Block of Maffitt Avenue Residential Parking District

17.135 Reserved

17.140 Reserved

17.145 4500 Gibson Avenue Residential Park District

17.150 4500 Wichita Avenue Residential Park District

17.155 2200 Block of Cherokee Street Residential Parking District

17.160 Gerhart Lofts Building Residential Parking District

17.165 Reserved

17.170 Reserved

17.175 5700 Walsh Street Residential Parking District

17.180 Skinker-Fauquier Parking District

17.185 Commercial Vehicles Prohibited Along Part of West Park Avenue

17.190 3rd Ward Residential Speed Limit District

17.195 Operation of All-Terrain Vehicles

17.200 Third Ward Residential Parking District

17.205 **Alleys in Kingsway East, Kingsway West, Penrose, and Mark Twain Neighborhoods**

17.207 **Prohibiting Parking on Parts of N. Euclid Avenue**

17.210 **Traffic and Parking Regulations for Kingshighway Memorial Boulevard**

17.215 **Commercial Vehicle Traffic Along Meramec Street**

17.220 **Neighborhood Traffic Safety Improvement Fund**

17.225 **Vista Avenue Residential Parking District**

DIVISION I. TRAFFIC CODE

Chapter 17.02

DEFINITIONS

Sections:

17.02.010 **Generally.**

17.02.020 Accident.
17.02.030 Alley, alleyway.
17.02.040 Angle parking.
17.02.050 Arterial or collector street.
17.02.060 Barricade.
17.02.070 Barrier line.
17.02.080 Bicycle, tricycle.
17.02.081 Bicycle/pedestrian right-of-way.
17.02.090 Bus.
17.02.100 Bus zone.
17.02.110 Camper.
17.02.120 Central traffic district.
17.02.130 Center line.
17.02.140 Chauffeur.
17.02.150 Commercial vehicle.
17.02.160 Controlled or limited access highway.
17.02.170 Crosswalk.
17.02.180 Curb.
17.02.190 Curb loading zone.
17.02.200 Curb or street market.
17.02.210 Driver.
17.02.220 Driveway.
17.02.230 Emergency vehicles.
17.02.240 Equestrian.
17.02.250 Fire lane.
17.02.260 Highway.
17.02.265 Homemade trailer.
17.02.270 Intersection.
17.02.280 Lane line.
17.02.290 Lateral boundary.
17.02.295 Controlled access highway.
17.02.300 Motor vehicle.
17.02.310 Motorcycle.
17.02.315 Motorized bicycle.
17.02.320 Night time.
17.02.330 Official time standard.
17.02.340 Official traffic control devices.
17.02.350 One-way street.
17.02.360 Owner.
17.02.370 Park, parking.
17.02.380 Parking lot.
17.02.390 Pedestrian.
17.02.400 Person.
17.02.410 Police officer.
17.02.420 Private road or driveway.
17.02.430 Public holidays.
17.02.440 Railroad.
17.02.450 Recreation motor vehicle.
17.02.460 Residential area.
17.02.470 Right-of-way.
17.02.480 Roadway.
17.02.490 Sidewalk.
17.02.495 Stand or standing.
17.02.500 Stop.
17.02.505 Stop or stopping.
17.02.510 Street.
17.02.520 Taxicab.
17.02.530 Traffic.
17.02.540 Traffic-control signal.
17.02.550 Trailer.
17.02.560 Truck.
17.02.570 Truck-tractor or tractor.
17.02.580 Vehicle.

17.02.010 Generally.

The following words and phrases when used in this division shall have the meanings set forth in this chapter. (1960 C., Ch. 820; 1994 C., § 17.02.010; Ord. No. 57831, § 1(part), 1979.)

17.02.020 Accident.

"Accident" means an occurrence involving the movement or cessation of movement of either a vehicle, a device moved by human power, or a device used exclusively on rails, which results in damage, injury or fatality. (1960 C., § 820.010; 1994 C., § 17.02.020; Ord. No. 57831, § 1(part), 1979.)

17.02.030 Alley, alleyway.

"Alley, alleyway" means every way set apart for public use within a block for local conveniences, except streets. (1960 C., § 820.020; 1994 C., § 17.02.030; Ord. No. 57831, § 1(part), 1979.)

17.02.040 Angle parking.

"Angle parking" means the standing of any vehicle whether occupied or not upon a roadway other than parallel to the curb where the longitudinal axis of vehicles form an angle with the alignment of the roadway. (1960 C., § 820.030; 1994 C., § 17.02.040; Ord. No. 57831, § 1(part), 1979.)

17.02.050 Arterial or collector street.

"Arterial or collector street" means every street or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting streets is required by law to yield right-of-way to vehicles on such arterial or collector street in obedience to either a stop sign or a yield sign, when such signs are erected as provided in this division. (1960 C., § 820.040; 1994 C., § 17.02.050; Ord. No. 57831, § 1(part), 1979.)

17.02.060 Barricade.

"Barricade" means a nonportable device constructed within the roadway for the purpose of prohibiting or redirecting the passage of vehicles. (1960 C., § 820.050; 1994 C., § 17.02.060; Ord. No. 57831, § 1(part), 1979.)

17.02.070 Barrier line.

"Barrier line" means an unbroken, double, yellow line upon the surface of the roadway, requiring that all traffic shall keep to the right of said line except when turning. (1960 C., § 820.060; 1994 C., § 17.02.070; Ord. No. 57831, § 1(part), 1979.)

17.02.080 Bicycle, tricycle.

"Bicycle, tricycle" means a manually propelled device. (1960 C., § 820.070; 1994 C., § 17.02.080; Ord. No. 57831, § 1(part), 1979.)

17.02.081 Bicycle/pedestrian right-of-way.

"Bicycle/pedestrian right-of-way" means that portion of any street, roadway, sidewalk, public easement or other public place where its primary use has been designated for use by persons riding a bicycle or tricycle or by persons walking, running or skating. Nothing contained herein shall prohibit the use of any such designated place by a disabled person in a wheelchair or similar device. (1994 C., § 17.02.081; Ord. No. 64952, § 3, 2000.)

17.02.090 Bus.

"Bus" means a motor vehicle designed, equipped, or regularly used to carry more than eight (8) passengers. (1960 C., § 820.090; 1994 C., § 17.02.090; Ord. No. 57831, § 1(part), 1979.)

17.02.100 Bus zone.

"Bus zone" means a space on or adjacent to the main traveled portion of the roadway specifically marked and designated for the loading or unloading of passengers from buses. (1960 C., § 820.080; 1994 C., § 17.02.100; Ord. No. 57831, § 1(part), 1979.)

17.02.110 Camper.

For the definition of "camper," see recreation motor vehicle. (1960 C., § 820.100; 1994 C., § 17.02.110; Ord. No. 57831, § 1(part), 1979.)

17.02.120 Central traffic district.

"Central traffic district" means the area bounded by the north curb line of Cole Street, the south curb line of Spruce Street, the east curb line of Third Street and Memorial Drive, and the west curb line of Twelfth Street. (1960 C., § 820.110; 1994 C., § 17.02.120; Ord. No. 57831, § 1(part), 1979.)

17.02.130 Center line.

"Center line" means a broken single or double yellow line upon the surface of a roadway dividing traffic moving in opposite directions. (1960 C., § 820.120; 1994 C., § 17.02.130; Ord. No. 57831, § 1(part), 1979.)

17.02.140 Chauffeur.

"Chauffeur" means an individual licensed by a state as a chauffeur. (1960 C., § 820.130; 1994 C., § 17.02.140; Ord. No. 57831, § 1(part), 1979.)

17.02.150 Commercial vehicle.

"Commercial vehicle" means a vehicle which is licensed or designed or regularly used for the transportation of freight, merchandise or property. (1960 C., § 820.140; 1994 C., § 17.02.150; Ord. No. 57831, § 1(part), 1979.)

17.02.160 Controlled or limited access highway.

"Controlled or limited access highway" means any street which provides access connections only with public streets and which has no crossings at grade, and all connecting ramps thereto. (1960 C., § 820.150; 1994 C., § 17.02.160; Ord. No. 57831, § 1(part), 1979.)

17.02.170 Crosswalk.

"Crosswalk" means that portion of the roadway whether marked or unmarked, ordinarily included within the prolongation of curb and property lines at intersections, or any other portion of a roadway marked for pedestrian crossings. (1960 C., § 820.160; 1994 C., § 17.02.170; Ord. No. 57831, § 1(part), 1979.)

17.02.180 Curb.

"Curb" means the lateral boundaries of a roadway marked by the raised edging. (1960 C., § 820.170; 1994 C., § 17.02.180; Ord. No. 57831, § 1(part), 1979.)

17.02.190 Curb loading zone.

"Curb loading zone" means a space adjacent to a curb, reserved for the exclusive use of vehicles during the loading or unloading of freight. (1960 C., § 820.180; 1994 C., § 17.02.190; Ord. No. 57831, § 1(part), 1979.)

17.02.200 Curb or street market.

"Curb or street market" means a space on or adjacent to the street set aside and designated by the Board of Public Service as a place from which anyone possessing a permit may sell produce and other goods. (1960 C., § 820.190; 1994 C., § 17.02.200; Ord. No. 57831, § 1(part), 1979.)

17.02.210 Driver.

"Driver" means every person who drives or is in actual physical control of a vehicle. (1960 C., § 820.200; 1994 C., § 17.02.210; Ord. No. 57831, § 1(part), 1979.)

17.02.220 Driveway.

For the definition of "driveway," see private road or driveway. (1960 C., § 820.210; 1994 C., § 17.02.220; Ord. No. 57831, § 1(part), 1979.)

17.02.230 Emergency vehicles.

An "emergency vehicle" is a vehicle of any of the following types:

A. A publicly owned vehicle whenever it is operated as an ambulance, but only during an emergency trip;

B. A privately owned vehicle approved by the Director of Streets operated as an ambulance, but only during an emergency trip;

C. A publicly owned vehicle when operated by an officer of either the Missouri State Highway Patrol or a Police Department, but only when going to a destination in response to an emergency call or when in pursuit of an actual or suspected law violator;

D. A publicly owned vehicle when operated by a fireman, but only when going to a destination in response to a fire alarm;

E. A publicly owned vehicle when operated by the Medical Examiner, Deputy Medical Examiner or Medical Examiner Investigator, but only when going to a destination in response to an emergency call;

F. A publicly owned vehicle when operated by the Missouri Department of Transportation, but only when going to a destination in response to an emergency call. (1960 C., § 820.220; 1994 C., § 17.02.230; Ord. No. 67324, § 1, 2006; Ord. No. 57831, § 1(part), 1979.)

17.02.240 Equestrian.

"Equestrian" means a rider of a horse or other animal. (1960 C., § 820.230; 1994 C., § 17.02.240; Ord. No. 57831, § 1(part), 1979.)

17.02.250 Fire lane.

"Fire lane" means any place designated by the words "fire lane." (1960 C., § 820.240; 1994 C., § 17.02.250; Ord. No. 57831, § 1(part), 1979.)

17.02.260 Highway.

For the definition of "highway," see street. (1960 C., § 820.245; 1994 C., § 17.02.260; Ord. No. 57831, § 1(part), 1979.)

17.02.265 Homemade trailer.

"Homemade trailer" means a trailer designed, constructed or modified by an individual who is not a manufacturer using readily distinguishable manufacturers' identifying numbers or a statement of origin. (1994 C., § 17.02.265; Ord. No. 64705, § 1, 1999.)

17.02.270 Intersection.

"Intersection" means the area within the prolongation of the lateral curb lines (or if none, then the lateral boundary lines) of two or more streets which join one another at an angle whether or not one such street crosses the other. (1960 C., § 820.250; 1994 C., § 17.02.270; Ord. No. 57831, § 1(part), 1979.)

17.02.280 Lane line.

"Lane line" means any line upon the surface of a roadway separating two traffic lanes moving in the same direction. (1960 C., § 820.260; 1994 C., § 17.02.280; Ord. No. 57831, § 1(part), 1979.)

17.02.290 Lateral boundary.

"Lateral boundary" means edge of a roadway whether marked or not. (1960 C., § 820.270; 1994 C., § 17.02.290; Ord. No. 57831, § 1(part), 1979.)

17.02.295 Controlled access highway.

"Controlled access highway" means a highway designed exclusively for unhindered, high-speed vehicular traffic, with all traffic flow and ingress/egress regulated by providing interchanges with only selected public roads. In the City of St. Louis these highways are I-44, I-70, I-64/40, and I-55. (1994 C., § 17.02.295; Ord. No. 69263, § 1, 11-2-2012.)

17.02.300 Motor vehicle.

"Motor vehicle" means every vehicle which is self-propelled, except those which move upon a track(s). (1960 C., § 820.280; 1994 C., § 17.02.300; Ord. No. 66692, § 1(part), 2005; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.02.310 Motorcycle.

"Motorcycle" means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground but excluding a tractor. (1960 C., § 820.290; 1994 C., § 17.02.310; Ord. No. 57831, § 1(part), 1979.)

17.02.315 Motorized bicycle.

"Motorized bicycle" shall mean any two- or three-wheeled device having an automatic transmission and a motor with a cylinder capacity of not more than fifty cubic centimeters, which produces less than three gross brake horsepower, and is capable of propelling the device at a maximum speed of not more than thirty miles per hour on level ground, except those devices used by persons with disabilities for the purpose of mobility. (1960 C., § 820.295; 1994 C., § 17.02.315; Ord. No. 66692, § 1(part), 2005; Ord. No. 58448, § 2(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.02.320 Night time.

"Night time" means the period from the time the street lights are turned on until they are turned off, or in any event, from thirty (30) minutes after sunset until thirty (30) minutes before sunrise. (1960 C., § 820.300; 1994 C., § 17.02.320; Ord. No. 57831, § 1(part), 1979.)

17.02.330 Official time standard.

"Official time standard" means whenever certain hours are named herein they shall mean standard time or daylight saving time as may be in current use by this City. (1960 C., § 820.310; 1994 C., § 17.02.330; Ord. No. 57831, § 1(part), 1979.)

17.02.340 Official traffic control devices.

"Official traffic control devices" means all signs, signals, marking and devices placed or erected by authority of the Traffic and Transportation Administration or the Board of Aldermen for the purpose of regulating, warning, or guiding traffic. (1960 C., § 820.320; 1994 C., § 17.02.340; Ord. No. 57831, § 1(part), 1979.)

17.02.350 One-way street.

"One-way street" means a street where vehicles are, by signs, permitted to move in one designated direction only. (1960 C., § 820.330; 1994 C., § 17.02.350; Ord. No. 57831, § 1(part), 1979.)

17.02.360 Owner.

"Owner" means a person, other than a lienholder, having a property interest in or legal title to a vehicle. The term includes a person entitled to the use and possession of a vehicle subject to a security interest in another person, but excludes a lessee under a lease not intended as security. (1960 C., § 820.340; 1994 C., § 17.02.360; Ord. No. 57831, § 1(part), 1979.)

17.02.370 Park, parking.

"Park, parking" means the standing of a vehicle upon a roadway (other than temporarily for the purpose of and while actually engaged in loading or unloading freight or passengers). (1960 C., § 820.350; 1994 C., § 17.02.370; Ord. No. 57831, § 1(part), 1979.)

17.02.380 Parking lot.

"Parking lot" means any building or parcel of land regularly used, in whole or in part, for the storing or parking of more than five (5) motor vehicles and which is open to the general public, including, but not limited to, "drive-in" facilities, commercial "free" courtesy lots and lots for which a fee is charged. The term "parking lot" shall not include lots owned by a person, firm or corporation operated for the exclusive use of such person, firm or corporation or employee thereof. (1960 C., § 820.351; 1994 C., § 17.02.380; Ord. No. 57831, § 1(part), 1979.)

17.02.390 Pedestrian.

"Pedestrian" means any person afoot. (1960 C., § 820.360; 1994 C., § 17.02.390; Ord. No. 57831, § 1(part), 1979.)

17.02.400 Person.

"Person" means every natural person, firm, copartnership, association or corporation. (1960 C., § 820.370; 1994 C., § 17.02.400; Ord. No. 57831, § 1(part), 1979.)

17.02.410 Police officer.

"Police officer" means every officer with the power of arrest within the City. (1960 C., § 820.380; 1994 C., § 17.02.410; Ord. No. 57831, § 1(part), 1979.)

17.02.420 Private road or driveway.

"Private road or driveway" means every road or driveway not open to the use of the public for the purpose of vehicular traffic. (1960 C., § 820.390; 1994 C., § 17.02.420; Ord. No. 57831, § 1(part), 1979.)

17.02.430 Public holidays.

"Public holidays," where referred to in this division, shall be New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day and Christ-

mas Day. (1960 C., § 820.400; 1994 C., § 17.02.430; Ord. No. 57831, § 1(part), 1979.)

17.02.440 Railroad.

"Railroad" means a carrier of persons or property upon cars operating upon rails. (1960 C., § 820.410; 1994 C., § 17.02.440; Ord. No. 57831, § 1(part), 1979.)

17.02.450 Recreation motor vehicle.

"Recreation motor vehicle" means any motor vehicle designed, constructed or substantially modified so that it may be used and is used for the purpose of temporary housing quarters, including therein sleeping and eating facilities which are either permanently attached to the motor vehicle or attached to a unit which is securely attached to the motor vehicle, and so licensed. (1960 C., § 820.420; 1994 C., § 17.02.450; Ord. No. 57831, § 1(part), 1979.)

17.02.460 Residential area.

"Residential area" means any area so designated by zoning ordinance of the City. (1960 C., § 820.430; 1994 C., § 17.02.460; Ord. No. 57831, § 1(part), 1979.)

17.02.470 Right-of-way.

"Right-of-way" means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other. (1960 C., § 820.440; 1994 C., § 17.02.470; Ord. No. 57831, § 1(part), 1979.)

17.02.480 Roadway.

"Roadway" means that portion of the street or alley between the regularly established curbs or that portion ordinarily used for vehicular travel; the shoulder is not part of the roadway. (1960 C., § 820.450; 1994 C., § 17.02.480; Ord. No. 57831, § 1(part), 1979.)

17.02.490 Sidewalk.

"Sidewalk" means that portion of a street between the curb line (or the lateral boundary of a roadway) and the adjacent property line intended for use of pedestrians. (1960 C., § 820.460; 1994 C., § 17.02.490; Ord. No. 57831, § 1(part), 1979.)

17.02.495 Stand or standing.

"Stand" or "standing" means the halting of a vehicle, whether occupied or not, otherwise than temporarily in obedience to traffic regulations or traffic signs or signals, or when discharging a passenger or picking up a waiting passenger. (1994 C., § 17.02.495; Ord. No. 58702, § 1(part), 1982.)

17.02.500 Stop.

"Stop" means the complete cessation from movement. (1960 C., § 820.470; 1994 C., § 17.02.500; Ord. No. 57831, § 1(part), 1979.)

17.02.505 Stop or stopping.

"Stop" or "stopping," when prohibited, means any halting even momentarily of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic control sign or signal. (1994 C., § 17.02.505; Ord. No. 58702, § 1(part), 1982.)

17.02.510 Street.

"Street" means the entire width between the adjacent property lines of every way, including a controlled access highway, but not an alley, when any part thereof is open to the use of the public for the purpose of vehicular travel, also known as "highway." (1960 C., § 820.480; 1994 C., § 17.02.510; Ord. No. 69263, § 1, 11-2-2012; Ord. No. 57831, § 1(part), 1979.)

17.02.520 Taxicab.

"Taxicab" means any motor vehicle engaged in the business of carrying persons for hire on the streets of the City, whether the same is operated from a street stand or from a garage, where no regular or specific route is traveled, but passengers are taken to and from places as they may designate, whether the charge therefor is made upon the basis of distance traveled, as indicated by a taximeter speedometer attached thereto, or by any other method of determining distance, such as by a zoning system or otherwise, or the time consumed in traveling, as indicated by a time card furnished the passenger by the operator, or on any other basis whatever. (1960 C., § 820.490; 1994 C., § 17.02.520; Ord. No. 57831, § 1(part), 1979.)

17.02.530 Traffic.

"Traffic" means pedestrians, ridden or herded animals, bicycles, vehicles and other conveyances, either singularly or together, while using any street or alley for purpose of movement. (1960 C., § 820.500; 1994 C., § 17.02.530; Ord. No. 57831, § 1(part), 1979.)

17.02.540 Traffic-control signal.

"Traffic-control signal" means any device, whether manually, electrically or mechanically operated, by which

traffic is directed. (1960 C., § 820.510; 1994 C., § 17.02.540; Ord. No. 57831, § 1(part), 1979.)

17.02.550 Trailer.

"Trailer" means any vehicle without motive power designed for carrying property or passengers on its own structure and for being drawn by self-propelled vehicle, except those running exclusively on rails. (1960 C., § 820.520; 1994 C., § 17.02.550; Ord. No. 57831, § 1(part), 1979.)

17.02.560 Truck.

"Truck" means every motor vehicle designed, used or maintained primarily for the transportation of property and so licensed. (1960 C., § 820.530; 1994 C., § 17.02.560; Ord. No. 57831, § 1(part), 1979.)

17.02.570 Truck-tractor or tractor.

"Truck-tractor or tractor" means a self-propelled motor vehicle designed for drawing other vehicles, but not for the carrying of any load when operating independently. (1960 C., § 820.531; 1994 C., § 17.02.570; Ord. No. 57831, § 1(part), 1979.)

17.02.580 Vehicle.

"Vehicle" means every device, in, upon, or by which any person or property is or may be transported or drawn upon a roadway, excepting motorized bicycles and devices moved by human power or used exclusively upon rails. (1960 C., § 820.540; 1994 C., § 17.02.580; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.04

TRAFFIC AND TRANSPORTATION ADMINISTRATOR

Cases:

Ordinance authorizing the Director of Streets to install barricades to effect the closing and/or diverting of traffic at certain intersections was not an unconstitutional delegation of legislative power, did not constitute a nuisance per se, and did not conflict with state law prohibiting traffic obstructions. State ex rel. *Schmitz v. City of St. Louis,* 551 S.W. 2d 848 (1977).

Sections:

17.04.010 Traffic and Transpiration Division established—Administrator appointed.

17.04.020 Powers and duties—Generally.

17.04.030 Powers and duties—Highway, transit and parking planning.

17.04.040 Powers and duties—Design preparation.

17.04.050 Powers and duties—Research and education.

17.04.060 Powers and duties—Transportation studies.

17.04.070 Powers and duties—Transportation alternatives.

17.04.080 Appointment of assistants.

17.04.090 Authority to establish traffic regulations.

17.04.100 Authority to develop Traffic Calming Policy.

17.04.010 Traffic and Transpiration Division established—Administrator appointed.

There is established in the Department of Streets a division known as the Traffic and Transportation Division. The Director of Streets shall appoint a Traffic and Transportation Administrator who shall be an engineer having such qualifications as may be prescribed by the Department of Personnel. (1960 C., § 821.010; 1994 C., § 17.04.010; Ord. No. 57831, § 1(part), 1979.)

17.04.020 Powers and duties—Generally.

The Traffic and Transportation Administrator shall be the head of the Traffic and Transportation Division. He shall install, operate and maintain all traffic signals, signs and markings, and shall determine and designate their character, location and use. He may remove or otherwise change all such traffic signals, signs and markings. He shall investigate, receive and file police traffic accident reports, conduct engineering analysis of such accidents, and devise methods for their prevention. He shall have the authority within the limits of the funds at his disposal to coordinate traffic activities, to carry on educational activities in traffic matters, to supervise the preparation and publication of traffic reports, to receive complaints having to do with traffic matters and to recommend to the Board of Aldermen, Chief of Police and other City officials ways and means for improving traffic conditions and the administration and enforcement of traffic regulations. He shall provide a surveillance of the street system through the use of inventories and operational studies. These studies shall include, but not be limited to, capacity analysis of streets, on-street and off-street parking facilities, and location and condition of traffic control devices; evaluation of vehicular and pedestrian volumes, parking

space usage, travel time, speed studies, traffic accidents, and origin-destination studies. (1960 C., § 821.020(part); 1994 C., § 17.04.020; Ord. No. 56831, § 1(part), 1979.)

17.04.030 Powers and duties—Highway, transit and parking planning.

The Traffic and Transportation Administrator shall be instrumental in developing plans and evaluating operational aspects for new street and highway locations, off-street parking facilities and transit operations. (1960 C., § 821.020(part); 1994 C., § 17.04.030; Ord. No. 57831, § 1(part), 1979.)

17.04.040 Powers and duties—Design preparation.

The Traffic and Transportation Administrator shall be responsible for preparation of specifications, standards and designs for traffic control equipment and installation; review of street design with respect to alignment cross-section, access control, sight distance, intersection and interchange layout; redesign of intersections to increase safety and capacity, review of plans by private developers with respect to traffic flow patterns, land use, access control and driveway locations; and preparation of design criteria for different levels of demand. (1960 C., § 821.020(part); 1994 C., § 17.04.040; Ord. No. 57831, § 1(part), 1979.)

17.04.050 Powers and duties—Research and education.

The Traffic and Transportation Administrator shall be responsible for continued research with respect to new techniques and materials in the line of traffic controls. He shall develop and coordinate educational programs for motorists and pedestrian safety. He shall also prepare reports pertaining to traffic functions and investigate complaints from citizens and public officials. (1960 C., § 821.020(part); 1994 C., § 17.04.050; Ord. No. 57831, § 1(part), 1979.)

17.04.060 Powers and duties—Transportation studies.

The Traffic and Transportation Administrator shall perform inventory studies concerning the present transportation system, travel patterns, land use, parking, population density and economic activity. This inventory may include the physical and operational aspects of all modes of transportation. (1960 C., § 821.020(part); 1994 C., § 17.04.060; Ord. No. 57831, § 1(part), 1979.)

17.04.070 Powers and duties—Transportation alternatives.

The Traffic and Transportation Administrator shall formulate alternatives with respect to transportation system and land use plans. He shall evaluate the alternatives in terms of system performance, effect on community environment and cost-benefit ratios. (1960 C., § 821.020(part); 1994 C., § 17.04.070; Ord. No. 57831, § 1(part), 1979.)

17.04.080 Appointment of assistants.

The Traffic and Transportation Administrator shall appoint such inspectors, clerks, traffic engineers and other assistants as necessary to perform the duties of his office, provided he has sufficient funds available. All such employees shall have the qualifications prescribed by the Department of Personnel. (1960 C., § 821.020(part); 1994 C., § 17.04.080; Ord. No. 57831, § 1(part), 1979.)

17.04.090 Authority to establish traffic regulations.

The Traffic and Transportation Administrator is hereby authorized and empowered to establish reasonable regulations governing traffic in case of emergency or special conditions, when, in the opinion of the Traffic and Transportation Administrator, public safety, convenience and expedition of traffic may demand, such regulations shall be effective for the period of the duration of such emergency or special condition and no longer. (1960 C., § 821.030; 1994 C., § 17.04.090; Ord. No. 57831, § 1(part), 1979.)

17.04.100 Authority to develop Traffic Calming Policy.

A. As used in this section, the following terms and phrases shall be taken to have the meaning ascribed to them in this subsection, to wit:

1. "Speed hump" means a gradual raised area in the pavement surface extending across the entire travel width. While measurements vary depending on the particular characteristics associated with a road, a typical speed hump, as an example, may at its highest point measure 3 to 4 inches in height, and have a travel length of 12 to 15 feet.

2. "Traffic calming" means physical design and other measures, including, but not limited to, narrowed roads and speed humps, put into place on roads with the intention of slowing down or reducing motor-vehicle traffic as well as improving safety for pedestrians and cyclists.

B. All requests for traffic calming, and related traffic complaints, except those related to or requesting speed humps in residential alleys, or on residential or secondary streets that are not bus routes, received by the City of St. Louis, shall be addressed and managed in accordance with a centralized process to be known as the City of St. Louis Traffic Calming Policy.

Requests by Aldermen for speed humps in residential alleys or on residential or secondary streets that are not bus routes, upon the passage of an ordinance authorizing speed humps in a residential alley or on a specific street, shall be granted by the Board of Public Service.

At no time shall traffic humps be installed on major streets or thoroughfares, or bus routes. An Aldermen may request a speed study for speed humps in residential alleys or residential streets in the ward he or she is elected to represent, if it is their belief said speed study is needed. Speed studies shall be completed internally by employees of the Street Department and the cost for said speed study shall not be assessed to the individual Ward Capital Improvement Sales Tax Funds.

C. The Director of Streets is hereby authorized to develop and promulgate the City of St. Louis Traffic Calming Policy, except as pertaining to speed humps outlines in Subsection B subject to the approval of the Board of Public Service. (1994 C., § 17.04.100; Ord. No. 71394, §§ 1—3, 10-13-2021; Ord. No. 70333, §§ 1—3, 7-14-2016.)

Chapter 17.06

ENFORCEMENT AND OBEDIENCE

Sections:

17.06.010 **Authority of Police, Fire Department and school crossing guards.**

17.06.020 **Obedience to police officers, firemen and school crossing guards.**

17.06.010 Authority of Police, Fire Department and school crossing guards.

A. It shall be the duty of the Police Department to enforce this title.

B. Officers of the Police Department are hereby authorized to direct all traffic whenever needed, by voice or signal.

C. Members of the Fire Department, when at the scene of or in the immediate vicinity of a fire or any other emergency where Fire Department equipment is present and when maneuvering Fire Department equipment at a firehouse may direct or may assist police officers in directing traffic by voice or signal.

D. School crossing guards are hereby authorized to regulate traffic to the extent of stopping traffic and causing it to remain stopped, by voice or signal, whenever such regulation of traffic is necessary to ensure the safe passage of children. (1960 C., § 822.010; 1994 C., § 17.06.010; Ord. No. 57831, § 1(part), 1979.)

17.06.020 Obedience to police officers, firemen and school crossing guards.

A. No person shall fail or refuse to comply with the reasonable orders or signal of a police officer, fireman, or school crossing guard given or made while enforcing this title.

B. It shall be unlawful on public streets for any person designated by this division to interfere with, or direct or attempt to direct traffic movements or parking.

C. Fleeing or Attempting to Elude Police Officer. Any driver or operator of a motor vehicle who, having been given a visual or audible signal by a peace officer directing such driver or operator to bring his vehicle to a stop, willfully fails or refuses to obey such direction, increases his speed, extinguishes his lights, or otherwise flees or attempts to elude the officer is guilty of a Class B misdemeanor. The signal given by the peace officer may be by hand, voice, siren, or red light. Provided, the officer giving such signal shall be in police uniform, and, if driving a vehicle, such vehicle shall be marked showing it to be an official police vehicle. (1960 C., § 822.020; 1994 C., § 17.04.020; Ord. No. 58448, § 2(part), 1981; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.07

AUTOMATED CAMERA ENFORCEMENT SYSTEMS

Editor's Note:

Ord. No. 71821, §§ 1—12, adopted April 16, 2024, amended the Code by repealing former Ch. 17.07, §§ 17.07.010—17.07.060, and adding a new Ch. 17.07. Former Ch. 17.07 pertained to the automated traffic control system, and derived from the 1994 Code, §§ 17.07.010—17.07.060; Ord. No. 66868, §§ 1—6, of 2005; and Ord. No. 68304, § 2, adopted February 16, 2009.

Sections:

17.07.010 **Definitions.**

17.07.020 **Program authorized.**

17.07.030 Supervision.
17.07.040 Vendor.
17.07.050 Location identification.
17.07.060 Implementation.
17.07.070 Public awareness.
17.07.080 Assessment.
17.07.090 Warning notices.
17.07.100 Prosecution.
17.07.110 Revenue.

17.07.010 Definitions.

As used in this chapter the following terms mean:

Artificial intelligence system means a technological system that, autonomously or partly autonomously, processes data related to human activities through the use of a genetic algorithm, a neural network, machine learning or another technique in order to generate content or make decisions, recommendations or predictions. It does not include passive computing infrastructure intermediary technology that does not influence or determine the outcome of decision, make or aid in decisions, inform policy implementation, or collect data or observations, such as web hosting, domain registration, networking, caching, data storage, or cybersecurity.

Authorized employees means employees of the St. Louis Metropolitan Police Division who are commissioned officers and who are authorized by the Chief of the SLMPD to access the images, video, and data collected by the City's automated camera enforcement system.

Automated camera enforcement system means a system that:

A. Consists of cameras installed or deployed to work in conjunction with electrically-operated traffic control signals or other methods of activation or detection;

B. Is capable of recording the date and time of the alleged traffic violation;

C. Is capable of recording the time elapsed under the red light;

D. Is capable of recording the speed of the vehicle involved in the alleged traffic violation;

E. Is capable of recording and producing video footage of the incident which is an alleged violation of a traffic ordinance of the City of St. Louis; and

F. Is capable of taking and producing not less than four (4) high-resolution color digital recorded images that show the incident which is an alleged violation of a traffic ordinance of the City of St. Louis, including, at a minimum:

(1) An image before the alleged traffic violation occurred, that shows the front or back of the vehicle involved in the alleged traffic violation;

(2) An image after the incident occurred, that shows the front or back of the vehicle involved in the alleged traffic violation;

(3) The license plate of the vehicle involved in the alleged traffic violation; and

(4) The face of the operator of the vehicle involved in the alleged traffic violation.

Operator means the individual driving and/or in possession of a vehicle.

Recorded images means photographs, digital images, microphotographs, micrographs, videotape, digital video, or other recorded images.

Surveillance program means any program, electronic or otherwise, that has as its primary purpose the monitoring of the behavior or activities of a person or people, or gathering information on a person or people.

Traffic violation means either a red light violation pursuant to Chapter 17.08 of the Revised Code of the City of St. Louis or RSMo 304.271—304.361; a stop sign violation pursuant to Chapter 17.08 of the Revised Code of the City of St. Louis or RSMo 304.351; or a vehicular speeding violation pursuant to Chapter 17.10 of the Revised Code of the City of St. Louis or RSMo 304.009.

(Ord. No. 71821, § 2, 4-16-2024.)

17.07.020 Program authorized.

A program is hereby authorized for the installation, deployment, and utilization of an automated camera enforcement system in the City.

(Ord. No. 71821, § 3, 4-16-2024.)

17.07.030 Supervision.

A. The St. Louis Metropolitan Police Department ("SLMPD") shall supervise the following, and so doing shall coordinate with other City departments or divisions as may be necessary and as provided under this chapter:

(1) The enforcement of alleged traffic violations as provided under this chapter.

B. The Board of Public Service ("BPS") shall supervise the following, and in so doing shall coordinate with other City departments or divisions as may be necessary and as provided under this chapter:

(1) The development, installation, and deployment of an automated camera enforcement system program, as provided under this chapter; and

(2) The selection of a vendor to provide an automated camera enforcement system for the city.

C. BPS and SLMPD shall supervise in collaboration on the following, and in so doing shall coordinate with other City departments or divisions as may be necessary and as provided under this chapter:

(1) The site selection process for intersection locations for the automated camera enforcement systems, as provided in Section 17.07.050; and

(2) The creation and public awareness of the automated camera enforcement system, as provided under Section 17.07.070;

(3) The assessment of the automated camera enforcement system as provided under Section 17.07.080. (Ord. No. 71821, § 4, 4-16-2024.)

17.07.040 Vendor.

A. *Request for proposal.* The SLMPD, BPS, Information Technology Services Agency, Traffic Division, and the City Counselor's Office shall develop a request for proposal for the selection of a vendor for the automated camera enforcement system. The request for proposal shall include, but not be limited to, the following requests for information:

(1) The vendor's ability to provide an automated camera enforcement system that meets, at minimum, the qualifications outlined in Section 17.07.010 of this chapter;

(2) The vendor's ability to install, maintain, and quickly repair all automated camera enforcement system equipment;

(3) The vendor's ability to cover all associated costs of implementation, installation, maintenance, repair, and operation of an automated camera enforcement system, and their proposed cost-sharing model with the city for doing so;

(4) The vendor's ability to provide and maintain signage required under this chapter;

(5) The vendor's ability to review footage for traffic violations and communicate such potential violations to the SLMPD;

(6) The vendor's ability to assist in determining the identity of the operator of a vehicle allegedly committing a traffic violation;

(7) The vendor's ability to allow authorized employees of the SLMPD to access or view, at any time, recorded images captured through the City's automated camera enforcement program through the City's Real Time Crime Center;

(8) The vendor's ability to safeguard all recorded images and other data the vendor collects through the City's automated camera enforcement system from unauthorized access, including but not limited to the vendor's use of encryption and access control mechanisms;

(9) The vendor's ability to ensure that all recorded images and other data the vendor collects through the City's automated camera enforcement system are accessed only by authorized employees;

(10) The vendor's data selling practices, and ability and willingness to ensure that no recorded images or other data the vendor collects through the City's automated camera enforcement system is sold, distributed, viewed, or otherwise exchanged for any value;

(11) The vendor's ability to maintain an audit log of individuals who access the recorded images and other data the vendor collects through the City's automated camera enforcement system;

(12) The vendor's ability to retain and destroy recorded images and other data the vendor collects through the City's automated camera enforcement system, including at intervals as directed by the City, and in alignment with the guidelines specified in RSMo 109.200—109.310;

(13) The vendor's ability to provide individuals who receive a violation notice under this chapter alleging a traffic violation with the recorded images collected by the City's automated camera enforcement system relating to the alleged traffic violation;

(14) The vendor's ability to support the production of separate traffic violation notices, one (1) of which will include all the alleged violator's information that will be provided to the alleged violator, and one (1) of which will be redacted of the alleged violator's sensitive personal information that will entered on the court record;

(15) The vendor's ability to meet any applicable requirements established by the State of Missouri and federal law for automated camera enforcement systems.

(16) The vendor's ability to collect the data necessary to comply with this chapter.

(17) The vendor's ability to provide authorized court personnel and the municipal court prosecutor with access, searchable by citation number and by name and date of birth, to such photographs, images or video from unattended cameras operating pursuant to this chapter for use and display in court proceedings and trial.

The President of BPS is authorized to enter into contracts for professional services related to the automated camera enforcement system authorized under this chapter.

B. *Minimum vendor system requirements.*

(1) The vendor shall provide an automated camera enforcement system that meets, at minimum, the qualifications outlined in 17.07.010 of this chapter.

(2) The system provided by the vendor shall provide authorized employees with the ability to review potential traffic violations in order for citations to be issued.

(3) The system shall further allow authorized employees to retrieve, at any time, recorded images captured through the City's automated camera enforcement program through the City's Real Time Crime Center.

(4) When possible, the system shall be capable of collecting any data necessary to comply with this chapter. The system shall, at a minimum, be capable of collecting sufficient data to determine changes in the rate of traffic violations per total number of vehicles that pass through the system.

C. *Vendor maintenance requirements.* The vendor selected shall be responsible for the installation, implementation, maintenance, and repair of the automated camera enforcement system equipment and software and all costs associated therein. In the event of automated camera enforcement system equipment failure, malfunction, damage, or other circumstances which render the automated camera enforcement equipment less effective, negatively impact operations under this chapter, or otherwise necessitate maintenance, the vendor shall quickly repair and return to operational status all automated camera enforcement system equipment. The vendor shall also be responsible for the installation, implementation, maintenance, and repair of signage required under this chapter.

D. *Vendor information protection requirements.* The vendor selected and all of their employees shall safeguard all recorded images and other data the vendor collects through the City's automated camera enforcement system from access by individuals other than authorized employees. The vendor and all of their employees shall ensure that all recorded images and other data the vendor collects through the City's automated camera enforcement system are accessed only by authorized employees or as otherwise provided by law or required by official duties for a purpose authorized by law.

E. *Vendor prohibitions.*

(1) The vendor shall not provide access to, share, sell, or otherwise make available or accessible images, video, and other data the vendor collects through the City's automated camera enforcement system to or for:

a. Any artificial intelligence system, as defined in 17.07.020, including, but not limited, to facial recognition systems;

b. Any electronic surveillance program of citizens, as defined in 17.07.020;

c. Any individuals, parties, or entities who are not authorized employees, other than individuals, parties, or entities involved in the prosecution of, defense against, or adjudication of an alleged traffic violation detected through the automated camera enforcement system created under this chapter; or

d. Any purpose other than for the implementation and administration of the City's automated camera enforcement system.

(2) In no instance shall the vendor sell or otherwise provide access to, share, or otherwise make available or accessible the recorded images and other data collected through the City's automated camera enforcement system for anything of value.

(3) Vendors shall not alter the function, duration, or schedule of traffic control signals.

(4) Vendors shall not be authorized to make decisions regarding the site locations of automated camera enforcement systems.

(5) Revenue from fines shall not be collected by or paid directly to the vendor.

F. *Other vendor requirements.* The operation of the automated enforcement system and the vendor must comply with the requirements for admission of photographic and video evidence under the "silent witness doctrine" in State v. Moyle, 532 S.W.3d 733 (Mo.App.W.D. 2017), and State v. Whittier, 591 S.W.3d 19 (Mo.App.E.D. 2019), provided that precedent is not overturned, to provide a live witness to testify at trials pertaining to violations issued pursuant to this chapter, and to establish any legal foundation that may be nec-

essary in order for video from unattended cameras operating pursuant to this chapter to be submitted as evidence for such trials.
(Ord. No. 71821, § 5, 4-16-2024.)

17.07.050 Location identification.

The SLMPD and BPS shall coordinate the selection of locations for automated camera enforcement systems, which shall be based upon the following factors:

A. Data on vehicular crash locations in the city, including side impact and turning crashes, crashes involving pedestrians and bicyclists, and crashes resulting in injuries or fatalities;

B. Data on traffic control ordinance violations, including violations pertaining to the running of red lights, vehicular crashes, and speeding;

C. Traffic volume on streets or highways associated with potential locations;

D. Equity and environmental factors associated with potential locations; and

E. Community feedback regarding intersections of concern in the City.
(Ord. No. 71821, § 6, 4-16-2024.)

17.07.060 Implementation.

A. *Supervision.* The automated camera enforcement system development, installation, and deployment shall be under the supervision of or with prior approval of BPS, working in collaboration with the SLMPD, and other City departments or divisions as may be necessary.

B. *Placement of automated camera enforcement system.* Devices that are part of the automated camera enforcement system may be installed or deployed at intersections identified pursuant to Section 17.07.050 of this chapter. Subsequent to the first placement of such devices at intersections in the City, additional devices may be installed or deployed at additional intersections in the City using the location identification criteria outlined in Section 17.07.050.

C. *Authorized use of automated camera enforcement system.* The automated camera enforcement system may be used by the SLMPD for the enforcement of alleged traffic violations as provided under this chapter to issue warning notices and violation notices for alleged traffic violations. Only authorized employees may access the system provided by the automated camera enforcement system vendor that collects, stores, and provides recorded images and other data for the City's automated camera enforcement program.

D. *Prohibited use of automated camera enforcement system.*

(1) In no instance shall the automated camera enforcement system be used by the SLMPD or any authorized employees for any enforcement other than the enforcement of traffic violations as provided under this chapter. The automated camera enforcement system shall not be used for prosecuting, issuing violation notices, or other enforcement activities for a red light violation for a legal right turn made after the operator of a vehicle brings the vehicle to a complete stop at a red light such that the wheels of the vehicle stop moving for any duration of time.

(2) In no instance shall the SLMPD or any authorized employee provide access to, share, or otherwise make available or accessible the recorded images and other data collected through the City's automated camera enforcement system to or for:

a. Any artificial intelligence system, as defined in Section 17.07.010, including, but not limited, to facial recognition systems;

b. Any electronic surveillance program of citizens, as defined in Section 17.07.010;

c. Any individuals, parties, or entities who are not authorized employees, other than individuals, parties, or entities involved in the prosecution of, defense against, or adjudication of an alleged violation detected through the automated camera enforcement system created under this chapter; or

d. Any purpose other than for the implementation and administration of the City's automated camera enforcement system.

E. *Designation of authorized employees.* No later than sixty (60) days prior to the first date the automated camera enforcement system becomes operational, the SLMPD shall inform the Director of the Department of Public Safety ("DPS") of the City employees who will be designated as authorized employees. The SLMPD shall inform the Director of DPS of any additional City employees designated as authorized employees no later than one (1) week prior to such individuals gaining access to the system provided by the automated camera enforcement system vendor that collects, stores, and provides recorded images and other data for the City's automated camera enforcement program.

F. *Probable cause.* Authorized employees shall examine the images and other data collected pursuant to this chapter to determine whether probable cause exists for a traffic violation. An authorized employee may use any lawful means to identify an individual allegedly violating City ordinance or state law, but in no instance shall artificial intelligence systems, as defined in 17.07.010, be used to identify the individual. Probable cause for alleged traffic violations detected through the automated camera enforcement system created under this chapter may be deemed to exist if it is in compliance with Rule 37 and if the recorded images or other data show the following:

(1) An alleged traffic violation;

(2) The date and time of the alleged traffic violation;

(3) The vehicle involved in the alleged traffic violation;

(4) The letters or numbers on the vehicle's license plate or temporary tag, as well as the state in which the license plate or temporary tag was issued;

(5) The face of the operator of the vehicle;

(6) The traffic control signal while it is emitting a steady red signal, as applicable; and

(7) The speed of the vehicle and the speed limit, as applicable.

(8) Whether the vehicle came to a complete stop at a stop sign, pursuant to Section 17.08.050 of the City's Revised Code, as applicable.

For any alleged traffic violations, probable cause shall not exist unless the identity of the operator of the vehicle at the time of the alleged violation is determined. An authorized employee may use any lawful means to identify the operator of the vehicle at the time of the alleged traffic violation.

(Ord. No. 71821, § 7, 4-16-2024.)

17.07.070 Public awareness.

The SLMPD shall, in partnership with BPS and any other City departments or divisions as may be necessary, develop strategies to raise public awareness of the implementation of the automated camera enforcement system in the City. Such awareness strategies shall be implemented by the SLMPD, in partnership with any other City departments or divisions as may be necessary, no less than sixty (60) days prior to the first date the automated camera enforcement system becomes operational.

Any automated camera enforcement system located on a street or highway must be identified by appropriate warning signs conspicuously posted not more than three hundred (300) feet from the location of each automated camera enforcement system location. Signage shall utilize pre-existing infrastructure, such as pre-existing sign poles, whenever possible. The placement of all advance warning signs must be approved by the SLMPD, working in partnership with BPS and any other City departments or divisions as may be necessary.

(Ord. No. 71821, § 8, 4-16-2024.)

17.07.080 Assessment.

One (1) year following the first date the automated camera enforcement system becomes operational in the City, and every year thereafter, the SLMPD shall compile and provide to the Director of DPS information assessing the outcomes of the automated camera enforcement system program created under this chapter, including the following:

A. The number of crashes at each intersection where an automated camera enforcement system has been installed or deployed, on a monthly basis;

B. The number of crashes at intersections where an automated camera enforcement system has not been installed or deployed, on a monthly basis;

C. The number of violations issued through the automated camera enforcement system, on a monthly basis;

D. The number of violations issued through the automated camera enforcement system at each intersection where an automated camera enforcement system has been installed or deployed, on a monthly basis;

E. The total number of vehicles that pass through the automated camera enforcement system at each system location, on a monthly basis;

F. The number of violations issued through the automated camera enforcement system, by zip code where the violation allegedly occurred, on a monthly basis;

G. Anonymized demographic data, to the extent it is available, of individuals who have received violations through the automated camera enforcement system, including their race and residential zip code, and the number of such individuals who have received two (2) or more citations under this chapter at the same intersection, if known, on an annual basis; and

H. Information regarding the cameras in use on an annual basis, including:

(1) The number of cameras;

(2) The location of cameras;

(3) The time intervals for which the recorded images and other data collected by the automated camera enforcement system are stored and destroyed; and

(4) As authorized under RSMo Ch. 610, or its successor, the authorized employees who have access to the system provided by the automated camera enforcement system vendor that collects, stores, and provides recorded images and other data for the City's automated camera enforcement program.

The Director of DPS shall provide a copy of information received by the Director of DPS in this section to the Board of Aldermen, President of BPS, and the Director of Streets.

As part of this annual assessment, the SLMPD shall, in partnership with BPS, determine whether to install or deploy automated camera enforcement systems at additional intersections, or to remove existing installed or deployed automated camera enforcement systems from intersections.

This determination shall utilize the factors outlined in Section 17.07.050; the data and information gathered pursuant to the annual report required under this section; and rules promulgated for the assessment of efficacy, potential additional installation and deployment, and potential removal of automated camera enforcement systems. Such rules shall be promulgated by BPS, in consultation with the Streets Department, SLMPD, Information Technology Services Agency, and the City Counselor's Office, within one hundred twenty (120) days of the effective date of this chapter.

As part of the annual assessment required under this section, if BPS, in consultation with the Streets Department and SLMPD, determines that the automated camera system has been ineffective at reducing traffic violations as provided under this chapter or otherwise ineffective at improving traffic safety at the locations where the automated camera system has been deployed, BPS may remove the automated camera enforcement system from such locations, and in addition the Streets Department may further recommend the installation of traffic calming measures at or near such locations. Any such recommended traffic calming measures shall align with the City's Complete Streets Policy as outlined in Ordinance Number 69955 or any successor ordinances.

(Ord. No. 71821, § 9, 4-16-2024.)

17.07.090 Warning notices.

For alleged traffic violations occurring within the first thirty (30) days after an automated camera enforcement system has begun operating in a particular location, only warning notices shall be issued to drivers. Warning notices shall not be issued as traffic citations and shall not be entered into law enforcement ticketing or mobile ticketing systems for prosecution. Warning notices shall not result in a conviction or fine for the alleged traffic offense.

(Ord. No. 71821, § 10, 4-16-2024.)

17.07.100 Prosecution.

The prosecution for an alleged traffic violation under this section shall be conducted in compliance with Missouri Supreme Court Rules, including Rule 37 or its successor. A notice of a traffic violation, including a red light violation, alleged as a result of the automated camera enforcement system created under this chapter shall only be issued to an individual who authorized employees have determined, pursuant to Section 17.07.060, was the operator of the vehicle at the time of the alleged traffic violation. The notice of violation shall be issued within thirty (30) days of the alleged traffic violation. The notice of violation shall comply with the requirements of Missouri Supreme Court Rule 37.33 or its successor, and shall also provide the following information gathered from the recorded alleged violation, including:

A. The date and time of the alleged traffic violation;

B. The time elapsed under the red light, as applicable;

C. The speed of the vehicle involved in the traffic violation and the speed limit, as applicable;

D. How to access any video footage of the alleged traffic violation; and

E. Any images that show the alleged traffic violation including, at a minimum:

(1) An image before the violation occurred, that shows the front or back of the vehicle involved in the alleged violation;

(2) An image after the incident occurred, that shows the front or back of the vehicle involved in the alleged violation;

(3) The license plate of the vehicle involved in the alleged violation; and

(4) The face of the operator of the vehicle involved in the traffic violation.

The vendor is prohibited from participating in any capacity in the enforcement or prosecution of traffic violations except as otherwise provided for and required in this chapter. For the prosecution of traffic violations under this chapter, the vendor shall provide live testimony, records, affidavits, and meet any other requirement to establish the foundation for admission into evidence of photographs, images or video from unattended cameras operating pursuant to this chapter at the trial of traffic violations under this chapter and as provided for in Section 17.07.040.F of this chapter. (Ord. No. 71821, § 11, 4-16-2024.)

17.07.110 Revenue.

All fines issued by the courts pursuant to violations of this chapter shall be paid to and through the courts, with monies distributed by the City Treasurer according to law, and disbursed by the Treasurer according to law. Fines shall not be collected by or paid directly to the vendor.

Any revenue received by the City from the courts as a result of automated camera enforcement systems shall be used exclusively for the following purposes:

A. City and administrative court costs associated with the automated camera enforcement program created under this chapter; and

B. The remainder shall be deposited into the Neighborhood Traffic Safety Improvement Fund.
(Ord. No. 71821, § 12, 4-16-2024.)

Chapter 17.08

TRAFFIC-CONTROL DEVICES

Sections:

Part I. In General

17.08.010 Authority to install traffic-control devices.
17.08.020 Obedience to traffic-control devices.
17.08.030 Obedience to traffic-control devices—Exceptions.
17.08.035 Nonfunctioning traffic-control devices—Vehicle procedures.
17.08.040 Official traffic-control devices—Presumption of legality.
17.08.050 Stop and yield signs—Generally.
17.08.060 One-way streets and rotary traffic islands.
17.08.070 Special purpose stops.
17.08.075 Stop sign replacement.
17.08.080 School stops.
17.08.090 Playground stops.
17.08.100 Church stops.
17.08.105 Warning signs.
17.08.110 Traffic-control signal colors and terms.
17.08.120 Traffic-control signal colors and terms—Green indication.
17.08.130 Traffic-control signal colors and terms—Steady red indication.
17.08.140 Traffic-control signal colors and terms—Steady yellow indication.
17.08.150 Traffic-control signal colors and terms—Flashing indications.
17.08.160 Traffic-control signal colors and terms—"Walk" and "Don't Walk."
17.08.170 Traffic-control signal colors and terms—Lane direction control.
17.08.180 Tampering with traffic-control devices.
17.08.190 Closing of traffic at schools.
17.08.200 Implementation of Section 17.08.190.
17.08.210 Display of unauthorized traffic-control devices.
17.08.220 Traffic lanes.
17.08.230 Obedience to signal indicating approach to train.
17.08.240 Certain buses and trucks to stop at railroad crossing.
17.08.250 Authority to use federal signs, symbols and markings.

Part II. Traffic Regulations

17.08.300 In general.
17.08.310 Establishment of electric traffic signals—Generally.
17.08.320 Establishment of electric traffic signals—Minimum vehicular volume.
17.08.330 Establishment of electric traffic signals—Interruption of continuous traffic.
17.08.340 Establishment of electric traffic signals—Minimum pedestrian volume.

17.08.350 Establishment of electric traffic signals—Large volumes of traffic.
17.08.360 Establishment of electric traffic signals—School crossings.
17.08.370 Establishment of electric traffic signals—Accident experience.
17.08.380 Stop signs—All approaches.
17.08.390 Stop signs—Two-way approaches.
17.08.400 Special stop signs—Generally.
17.08.410 Special stop signs—Schools.
17.08.420 Special stop signs—Playgrounds.
17.08.430 Special stop signs—Churches.
17.08.440 Special purpose stop signs.
17.08.450 Yield signs.
17.08.460 Pedestrian walk phases.
17.08.470 Prohibited parking.
17.08.480 Parking restrictions.
17.08.490 Turning movements at intersections.
17.08.500 Speed limits.
17.08.510 One-way streets.
17.08.520 Record of regulations—Review board.

PART I. IN GENERAL

17.08.010 Authority to install traffic-control devices.

The Traffic and Transportation Administrator shall designate traffic-control signs, signals and devices when

and as required under the traffic ordinances of the City to make effective the provisions of said ordinances, and may designate such additional traffic control devices to regulate traffic under the traffic ordinances of the City or under state law or to guide or warn traffic. A schedule of streets to include all stop and yield intersections of whatever nature shall be maintained in the office of the Traffic and Transportation Administrator and in the office of the Register of the City. (1960 C., § 823.010; 1994 C., § 17.08.010; Ord. No. 57831, § 1(part), 1979.)

17.08.020 Obedience to traffic-control devices.

The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this chapter, unless otherwise directed by a police officer or other authorized person. (1960 C., § 823.020; 1994 C., § 17.08.020; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.271 (2016) Observance of traffic-control devices

17.08.030 Obedience to traffic-control devices—Exceptions.

No provision of this chapter for which official traffic control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. (1960 C., § 823.030; 1994 C., § 17.08.030; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.271 (2016) Observance of traffic-control devices

17.08.035 Nonfunctioning traffic-control devices—Vehicle procedures.

A. The operator of a motor vehicle traveling toward an intersection where electric traffic-control devices are installed and the signal heads are not illuminated shall bring such motor vehicle to a complete stop before entering the intersection, in the same manner as if said electric control device showed a flashing red light.

B. Any person convicted of violating the provisions of this section shall be punished as provided by Section 1.12.010 of this Code. (1994 C., § 17.08.035; Ord. No. 58311, §§ 1, 2, 1981.)

17.08.040 Official traffic-control devices—Presumption of legality.

A. Whenever official traffic-control devices are placed in position conforming to the requirements of this chapter, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

B. Any official control device placed pursuant to the provisions of this chapter shall be presumed to comply with the requirements of this chapter unless the contrary shall be established by competent evidence. (1960 C., § 823.040; 1994 C., § 17.08.040; Ord. No. 57831, § 1(part), 1979.)

17.08.050 Stop and yield signs—Generally.

A. Every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, shall stop before entering the crosswalk on the near side of the intersection, or, if none, shall stop at the point nearest the intersecting street where the driver has a view of approaching traffic on the intersecting street before entering it and shall not proceed until safe to do so.

B. The driver of a vehicle approaching a yield sign, in obedience to such sign, shall slow to a speed reasonable for the existing conditions and, if required for safety, shall stop and shall not proceed until safe to do so. (1960 C. 823.050; 1994 C., § 17.08.050; Ord. No. 57831, § 1(part), 1979.)

17.08.060 One-way streets and rotary traffic islands.

A. The Traffic and Transportation Administrator may designate any street or part of a street as a one-way street upon which vehicular traffic shall move in one direction at all and such times as shall be indicated by official traffic control devices, except City one-man automated refuse collection trucks, which are hereby permitted to travel the wrong way on a one-way street while making refuse collections in that block. A list of one-way streets shall be kept on file in the office of the City Register.

B. Upon a street, so designated for one-way traffic, a vehicle shall be driven only in the direction designated at all or such times as shall be indicated by official traffic-control devices.

C. A vehicle passing around a rotary traffic island

shall be driven only to the right of such island. (1960 C., § 823.060; 1994 C., § 17.08.060; Ord. No. 59349, § 1, 1984; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.08.070 Special purpose stops.

At those street intersections or crosswalks, lawfully designated as a "special purpose stop," signs shall be erected by the Traffic and Transportation Division. When such signs are placed facing traffic, every driver shall stop and yield the right-of-way to drivers and pedestrians, and shall not proceed until safe to do so. (1960 C., § 823.070; 1994 C., § 17.08.070; Ord. No. 57831, § 1(part), 1979.)

17.08.075 Stop sign replacement.

The Director of Streets is hereby authorized to replace all permanent stop signs with material which will meet the minimum standards of reflective intensity value as outlined in the U.S. Department of Transportation, Federal Highway Administration publication FP-74. (1994 C., § 17.08.075; Ord. No. 57193, § 1, 1976.)

17.08.080 School stops.

At those street intersections or crosswalks lawfully designated as a "school stop," signs shall be erected by the Traffic and Transportation Division. When such signs are placed facing traffic, every driver facing such signs shall stop at such signs and shall yield the right-of-way to pedestrians and shall not proceed until safe to do so. (1960 C. 823.080; 1994 C., § 17.08.080; Ord. No. 57831, § 1(part), 1979.)

17.08.090 Playground stops.

At those street intersections or crosswalks lawfully designated as a "playground stop," signs shall be erected by the Traffic and Transportation Division. When signs are placed facing traffic, every driver facing such signs shall stop at the sign and yield the right-of-way to pedestrians and shall not proceed until safe to do so. (1960 C., § 823.090; 1994 C., § 17.08.090; Ord. No. 57831, § 1(part), 1979.)

17.08.100 Church stops.

At those street intersections or crosswalks lawfully designated as a "church stop," signs shall be erected by the Traffic and Transportation Division. When such signs are placed facing traffic, every driver shall stop and yield the right-of-way to pedestrians and shall not proceed until safe to do so. (1960 C., § 823.100; 1994 C., § 17.08.100; Ord. No. 57831, § 1(part), 1979.)

17.08.105 Warning signs.

When warning signs are placed facing traffic by either the Traffic and Transportation Administrator, State Highway Department, or any authorized agency, for safety or other traffic purposes, every driver facing such sign shall obey such warning and proceed with caution. (1960 C., § 823.105; 1994 C., § 17.08.105; Ord. No. 58448, § 2(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.08.110 Traffic-control signal colors and terms.

Whenever traffic is controlled by official traffic-control signals and devices, the following colors and terms shall have the meaning described in Sections 17.08.120 through 17.08.170. (1960 C., § 823.110(part); 1994 C., § 17.08.110; Ord. No. 57831, § 1(part), 1979.)

17.08.120 Traffic-control signal colors and terms—Green indication.

A. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or crosswalk during the time such signal is exhibited.

B. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Before entering an intersection such vehicular traffic shall yield the right-of-way to pedestrians lawfully within the intersection or crosswalk at the time such signal is exhibited. (1960 C., § 8 23.110(a); 1994 C., § 17.08.120; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.281 (2016) Traffic control signal legend

17.08.130 Traffic-control signal colors and terms—Steady red indication.

Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection and shall remain standing until an indication to proceed is shown. After stopping, a driver may cautiously enter the intersection only to make a right turn unless a sign at such place prohibits such movement and shall yield the right-of-way to pedestrians lawfully

within the adjacent crosswalks, and to all other traffic lawfully in the intersection or about to enter the intersection. (1960 C., § 823.110(b); 1994 C., § 17.08.130; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.281 (2016) Traffic control signal legend

17.08.140 Traffic-control signal colors and terms—Steady yellow indication.

A. Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement has been terminated and that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.

B. Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian-control signal, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian shall then start to cross the roadway. (1960 C., § 823.110(c); 1994 C., § 17.08.140; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.281 (2016) Traffic control signal legend

17.08.150 Traffic-control signal colors and terms—Flashing indications.

A. When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

B. When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

C. This section shall not apply at railroad grade crossings. (1960 C., § 823.110(d); 1994 C., § 17.08.150; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.301 (2016) Flashing signals

17.08.160 Traffic-control signal colors and terms—"Walk" and "Don't Walk."

A. "*Walk.*" Pedestrians at a crosswalk facing either a steady "Walk" or a flashing "Walk" signal may proceed across the roadway in the direction of the signal while in the crosswalk and shall be given the right-of-way by the drivers of all vehicles.

B. "*Don't Walk.*" No pedestrian shall start to cross the roadway in the direction of a steady or flashing "Don't Walk" signal. Any pedestrian who has partially completed his crossing on the walk signal shall proceed to a sidewalk or safety zone while the "Don't Walk" signal is showing. (1960 C., § 823.110(e); 1994 C., § 17.08.160; Ord. No. 57831, § 1(part), 1979.)

17.08.170 Traffic-control signal colors and terms—Lane direction control.

When lane direction control signals are placed over the individual lanes of a street vehicular traffic may travel in any lane over which a green signal is shown, but shall not enter or travel in any lane over which a red signal is shown. (1960 C., § 823.110(f); 1994 C., § 17.08.170; Ord. No. 57831, § 1(part), 1979.)

17.08.180 Tampering with traffic-control devices.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or otherwise interfere with or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof. (1960 C., § 823.120; 1994 C., § 17.08.180; Ord. No. 57831, § 1(part), 1979.)

17.08.190 Closing of traffic at schools.

The Traffic and Transportation Administrator may authorize the person in charge of any public or private school to cause any public street or alley adjacent to such school or any portion thereof to be temporarily closed to through vehicular traffic. Such authority shall be limited to the hours and days that the Traffic and Transportation Administrator shall determine to be reasonable and necessary to each case for the purpose of protecting the life and limb of the children attending such school. All barriers and signs necessary to effect such temporary closing shall be provided by each school receiving such authority. It shall be the obligation of the school receiving such authority to place and remove such barriers and signs. (1960 C., § 823.130; 1994 C., § 17.08.190; Ord. No. 57831, § 1(part), 1979.)

17.08.200 Implementation of Section 17.08.190.

For the purpose of carrying out the provisions of Section 17.08.190 in a uniform and orderly manner, the Traffic and Transportation Administrator shall issue such reasonable regulations as he may deem necessary,

including regulations as to the dimensions, color and wording on such barriers or signs, as will protect, for persons whose residences or places of business are on such temporarily closed street or alley, their rights of ingress and egress. (1960 C., § 823.140; 1994 C., § 17.08.200; Ord. No. 57831, § 1(part), 1979.)

17.08.210 Display of unauthorized traffic-control devices.

A. No person shall place, maintain or display upon or in view of any street any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of an official traffic-control device or any railroad sign or signal.

B. Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the authority having jurisdiction over the street is hereby empowered to remove the same or cause it to be removed without notice. (1960 C., § 823.160; 1994 C., § 17.08.210; Ord. No. 57831, § 1(part), 1979.)

17.08.220 Traffic lanes.

The Traffic and Transportation Administrator shall designate traffic lanes upon the roadway of any street where a regular alignment of traffic is necessary. (1960 C., § 823.170; 1994 C., § 17.08.220; Ord. No. 57831, § 1(part), 1979.)

17.08.230 Obedience to signal indicating approach to train.

A. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty feet, but not less than ten feet from the nearest rail of such railroad, and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

1. A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train;

2. A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train;

3. A railroad train approaching within approximately 1,500 feet of the street crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard;

4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

B. No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing which such gate or barrier is closed or being opened or closed. (1960 C., § 823.180; 1994 C., § 17.08.230; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.035 (2016) Stop required at railroad crossing

17.08.240 Certain buses and trucks to stop at railroad crossing.

Every bus transporting passengers, and every motor vehicle transporting high explosives, poisonous or compressed inflammable gases, inflammable or corrosive liquids in bulk (whether loaded or empty) shall, upon approaching any railroad grade crossing, be brought to a stop within fifty feet, but not less than ten feet from the nearest rail of such railroad grade crossing, and shall not proceed until due caution has been taken to ascertain that the course is clear. Such stop shall not be required at a railroad grade crossing protected by a watchman or a traffic officer. (1960 C., § 823.190; 1994 C., § 17.08.240; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.030 (2016) Similar provisions

17.08.250 Authority to use federal signs, symbols and markings.

The City Traffic and Transportation Division is hereby authorized to use symbol signs, word signs, pavement markings and electric signal indications as established by the most recent edition of the "Manual of Uniform Traffic Control Devices for Streets and Highways," published by the U.S. Department of Transportation Federal Highway Administration, a copy of which is on file in the Register's Office. (1960 C., § 823.200; 1994 C., § 17.08.250; Ord. No. 57831, § 1(part), 1979.)

PART II. TRAFFIC REGULATIONS

17.08.300 In general.

For the purpose of affording the Traffic and Transportation Administrator the ability to effect certain traffic controls and regulations when, in the opinion of

the Administrator, public safety, convenience and the expedition of traffic demands, the Administrator is hereby authorized and empowered, subject to the provisions hereof, to establish the respective regulatory measures and official control device specified in this chapter when the conditions in relation thereto exist, and may remove the same when such conditions do not exist or have ceased to exist. (1960 C., § 821.040(part); 1994 C., § 17.08.300; Ord. No. 57831, § 1(part), 1979.)

17.08.310 Establishment of electric traffic signals—Generally.

When one or more of the following criteria described in Sections 17.08.320 through 17.08.370 exists, electric traffic signals shall be established. (1960 C., § 821.040(A)(part); 1994 C., § 17.08.310; Ord. No. 57831, § 1(part), 1979.)

17.08.320 Establishment of electric traffic signals—Minimum vehicular volume.

Electric traffic signals shall be established, if:

A. Total vehicular volume entering the intersection section from both approaches of the major street must be at least 500 vehicles per hour for any 8 hours of an average day; and

B. Total vehicular volume entering the intersection from any approach on the minor street or streets must be at least 150 vehicles per hour for the same 8 hours. (1960 C., § 821.040(A)(1); 1994 C., § 17.08.320; Ord. No. 57831, § 1(part), 1979.)

17.08.330 Establishment of electric traffic signals—Interruption of continuous traffic.

Electric traffic signals shall be established, if:

A. At an intersection on a major street, the vehicle volume along that street must be at least 750 vehicles per hour for any 8 hours of an average day; and

B. The vehicle volume from any approach on the side street or streets must be at least 75 vehicles per hour for the same 8 hours. (1960 C., § 821.040(A)(2); 1994 C., § 17.08.330; Ord. No. 57831, § 1(part), 1979.)

17.08.340 Establishment of electric traffic signals—Minimum pedestrian volume.

Electric traffic signals shall be established, if:

A. The volume on the principal street must be 600 or more vehicles per hour entering the intersection (total of both approaches) for each of any 8 hours of an average day; and

B. During the same 8 hours as in Subsection A, there are 150 or more pedestrians per hour crossing the principal street. (1960 C., § 821.040(A)(3); 1994 C., § 17.08.340; Ord. No. 57831, § 1(part), 1979.)

17.08.350 Establishment of electric traffic signals—Large volumes of traffic.

Electric traffic signals shall be established if, at industrial plants, stadiums and other like places where large volumes of traffic occur on regular and reasonably frequent occasions, vehicular volume on the street past an establishment of the type mentioned above exceeds 800 vehicles per hour, and traffic to and from the establishment during the same period of time meets one of the following:

A. A minimum of 300 vehicles per hour; or

B. A minimum of 200 pedestrians crossing per hour; or

C. A minimum of 200 vehicles and 100 pedestrians crossing per hour;

D. Left turns into and from the establishment exceed 240 vehicles per hour. (1960 C., § 821.040(A)(4); 1994 C., § 17.08.350; Ord. No. 57831, § 1(part), 1979.)

17.08.360 Establishment of electric traffic signals—School crossings.

Electric traffic signals shall be established, if: at an established school crossing of a principal street the number of adequate gaps in the traffic stream during the crossing period must be less than the number of minutes in the same period. The adequate gaps are determined by considering the width of roadway and size of group of school children. (1960 C., § 821.040(A)(5); 1994 C., § 17.08.360; Ord. No. 57831, § 1(part), 1979.)

17.08.370 Establishment of electric traffic signals—Accident experience.

Electric traffic signals shall be established, if:

A. There have been five or more police reported accidents of types susceptible of correction by signalization within a 12-month period; and

B. There exists a volume of vehicular and pedestrian traffic of 80 percent or more of the requirements stated either in Sections 17.08.320, 17.08.330 or 17.08.340. (1960 C., § 821.040(A)(6); 1994 C., § 17.08.370; Ord. No. 57831, § 1(part), 1979.)

17.08.380 Stop signs—All approaches.

Stop signs on all approaches to an intersection are warranted if any of the following criteria are met:

A. Electric traffic signals are warranted, and the stop control is to be used as an interim control device;

B. Five or more police reported accidents in a 12-month period of types susceptible of correction by stop on all approaches;

C. Traffic volumes in the following combination are present:

1. Total vehicular volume entering the intersection from all approaches must be at least 500 vehicles per hour for any 8 hours; and

2. The combined vehicular and pedestrian volume from the minor street must be at least 200 units per hour for the same 8 hours, with an average delay of vehicles on the minor street of at least 30 seconds per vehicle during the maximum volume hour;

D. When both streets are local by classification and 51 percent of the registered voters in the block facing adjacent to the intersection indicate by petition that they desire the control and when the Alderman or Aldermen from the ward or wards, wherein the street or streets are located, indicate that they desire the control; or where the Alderman or Aldermen from the ward or wards wherein the proposed stop sign is located desires the control. (1960 C., § 821.040(B)(1); 1994 C., § 17.08.380; Ord. No. 58088, § 1, 1980; Ord. No. 57831, § 1(part), 1979.)

17.08.390 Stop signs—Two-way approaches.

Stop sign control is warranted for the lesser volume street when one of the following criteria is present:

A. The street is presently controlled with a yield sign and there have been 3 police reported accidents in a 12-month period caused by motorists failing to heed the yield control;

B. Vehicular volume averages 150 vehicles per hour for any 3 consecutive hours;

C. Three (3) police reported accidents in a 12-month period of types susceptible to correction;

D. Sight distance for either of the approaches of the minor volume street is restricted such that the safe approach speed is less than 10 mph;

E. When a local street by classification intersects with a collector or arterial street, the local street shall be controlled;

F. When two local streets intersect and in the opinion of the Traffic and Transportation Administrator safety requires the assignment of right-of-way for one street and when the appropriate Alderman or Aldermen from the ward or wards, wherein the street or streets are located, indicate that they desire the control. (1960 C., § 821.040(B)(2); 1994 C., § 17.08.390; Ord. No. 57831, § 1(part), 1979.)

17.08.400 Special stop signs—Generally.

The following school, playground, church and special purpose stop control shall be warranted when the criteria described in Sections 17.08.410 through 17.08.440 is satisfied. (1960 C., § 821.040(B)(3)(part); 1994 C., § 17.08.400; Ord. No. 57831, § 1(part), 1979.)

17.08.410 Special stop signs—Schools.

School stop signs controlling vehicular traffic are warranted if two of the following criteria are present:

A. More than 25 children on their way to or from school by the most feasible and direct route cross the street in a two-hour period in a crosswalk not guarded by a school crossing guard and an hourly volume of more than 500 vehicles use the street during the same two-hour period;

B. More than 200 children on their way to or from a school cross the street in a two-hour period in a crosswalk guarded by a school crossing guard;

C. There is no intersection, located less than 300 feet from the crosswalk under consideration, where vehicle traffic in the street being crossed by said crosswalk is controlled by a stop sign, an electric signal or a crossing guard. (1960 C., § 821.040(B)(3)(a); 1994 C., § 17.08.410; Ord. No. 57831, § 1(part), 1979.)

17.08.420 Special stop signs—Playgrounds.

Playground stop signs controlling vehicular traffic on a street are warranted at supervised play areas if two of the following criteria are present:

A. More than 25 children on their way to or from a playground cross the street in a two-hour period or in excess of 150 children cross during the hours 8 a.m. to 9 p.m. in a crosswalk not guarded by a crossing guard and an hourly volume of more than 500 vehicles use the street proposed to be controlled during the same two-hour period;

B. More than 200 children on their way to or from a playground cross the street in a two-hour period in a crosswalk guarded by a playground crossing guard;

C. There is no intersection located less than 300 feet from the crosswalk under consideration where vehicular traffic in the street being crossed by said crosswalk is controlled by a stop sign, an electric signal, or a crossing guard. (1960 C., § 821.040(B)(3)(b); 1994 C., § 17.08.420; Ord. No. 57831, § 1(part), 1979.)

17.08.430 Special stop signs—Churches.

Church stop signs controlling vehicular traffic on a street are warranted, if the following criteria are present:

A. More than 200 pedestrians on their way to or from church cross the street in a two-hour period in a crosswalk and an hourly volume of more than 500 vehicles use the street during the two-hour period used by pedestrians;

B. There is no intersection located less than 300 feet from the crosswalk under consideration where vehicular traffic on the street being crossed is controlled by a stop sign or an electric signal. (1960 C., § 821.040(B)(3)(c); 1994 C., § 17.08.430; Ord. No. 57831, § 1(part), 1979.)

17.08.440 Special purpose stop signs.

Special purpose stop signs controlling vehicular traffic on a street are warranted if the following criteria are present: More than 200 pedestrians cross the street in a one-hour period to or from their place of employment and there is a minimum of 500 vehicles using the street during the same hour. (1960 C., § 821.040(B)(3)(d); 1994 C., § 17.08.440; Ord. No. 57831, § 1(part), 1979.)

17.08.450 Yield signs.

A. Yield signs shall be warranted at intersections where the following criteria are present:

1. When the volume of vehicle traffic does not exceed the minimum requirements for a stop intersection and other minimum requirements for a stop intersection are not met;

2. When the total volume of vehicles entering the intersection reached 100 vehicles per hour for 8 hours, and the total volume of vehicle traffic entering the intersection does not exceed 500 vehicles per hour during more than two hours in a day.

B. Yield signs shall be warranted for use in controlling ramp traffic entering the main traffic flow when an adequate acceleration lane does not exist.

C. Yield signs shall be warranted where there is a separate or channelized right-turn lane, without an adequate acceleration lane. (1960 C., § 821.040(C); 1994 C., § 17.08.450; Ord. No. 57831, § 1(part), 1979.)

17.08.460 Pedestrian walk phases.

An exclusive pedestrian walk phase shall be warranted in conjunction with traffic signals when one of the following criteria is present:

A. When pedestrians and vehicles presently move during the same electric signal phase and the pedestrian volume crossing the more heavily traveled street averages at least 500 persons per hour for any 8 hours of an average day;

B. When sufficiently heavy vehicular turning movements exist so that pedestrians do not have sufficient time to cross the street into which vehicles are turning, based on the amount of time left to the pedestrian after turning movements are completed. Sufficient time shall be based on the duration of the signal phase, number of vehicles turning, and width of street.

C. When institutionalized pedestrians require special consideration to permit them to cross a major street adjacent to the institution. (1960 C., § 821.040(D); 1994 C., § 17.08.460; Ord. No. 57831, § 1(part), 1979.)

17.08.470 Prohibited parking.

Prohibition of parking along a curb shall be warranted when one of the following criteria exists:

A. On a two-way street where and when the average hourly volume of traffic per lane in all lanes (excluding the parking lanes) in one direction in any hour or hours exceeds 500 vehicles per hour the parking shall be prohibited during the hour or hours when such volume is exceeded and shall be prohibited along the curb or edge of roadway on the right of these traffic lanes;

B. On a one-way street where and when the average hourly volume of traffic per lane in all lanes (excluding the right and left parking lanes) in any hour or hours exceeds 500 vehicles per hour the parking shall be prohibited during the hour or hours when such volume is exceeded and shall be prohibited first along the left curb or edge or roadway and successively along the right hand curb or edge or roadway as required;

C. Any specific ordinance provision calling for such prohibition such as in a crosswalk;

D. Where vehicles waiting at an electric signal require more lane capacity;

E. Where visibility at an intersection is restricted by vehicles parking too close to one cross street, visibility being reduced below safe stopping distances for allowable operating speeds as adopted by the Institute of Traffic Engineers;

F. Where the narrowness of the roadway causes difficulty in maneuvering turns unless parking is prohibited;

G. Where a special turning lane requires additional lane capacity at an intersection;

H. Where the Fire Department requires a prohibition of parking to provide for adequate movements for fire apparatus;

I. When in the opinion of the Traffic and Transportation Administrator after proper study, the parking restrictions are needed for safety or to reduce interference with good traffic flow. (1960 C., § 821.040(E); 1994 C., § 17.08.470; Ord. No. 57831, § 1(part), 1979.)

17.08.480 Parking restrictions.

Restriction of curb parking to certain amounts of time during certain hours of the day shall be warranted according to the following criteria:

A. Where vehicles are parked in front of residences for periods of time longer than two hours and when the Traffic and Transportation Administrator is petitioned to act by more than 65 percent of the registered voters as to the length of time of parking and to the hours when such restrictions apply;

B. Where vehicles are parked in front of a place of business for a period of time longer than 2 hours and, when the proprietor of such place of business requests the Traffic and Transportation Administrator to act, such parking shall be restricted to a length of time not in excess of 2 hours during the hours of business of such establishment. (1960 C., § 821.040(F); 1994 C., § 17.08.480; Ord. No. 57831, § 1(part), 1979.)

17.08.490 Turning movements at intersections.

Turning movements at intersections may be prohibited when any one of the following criteria exists:

A. The turning movement is a left turning movement and represents less than 10 percent of the through traffic movements and such turning movements are observed to impede through movements of traffic;

B. Where a turning movement is not the only means of access and represents a hazard to safety as evidenced by three or more collisions in a 12-month period where the turning movement was involved;

C. Where the turning movement is not the only means of access and materially contributes to congestion or complicating factors in the involved intersection. (1960 C., § 821.040(G); 1994 C., § 17.08.490; Ord. No. 57831, § 1(part), 1979.)

17.08.500 Speed limits.

Speed limits shall be:

A. 40 miles per hour on streets, boulevards, and other public thoroughfares with limited access;

B. 35 miles per hour on arterial and collector streets, boulevards, and other public thoroughfares open to vehicular movements with at least two ten-foot lanes freely open to each direction of movement at all times. The paved roadway of streets, etc., so controlled shall be at least 56 feet wide on two-way streets, and 36 feet wide on one-way streets with parking restrictions, or 30 feet wide on one-way streets with parking restrictions on at least one side at all times;

C. 30 miles per hour on all other arterial and collector streets and on all other streets with a paved roadway at least 36 feet wide on two-way streets;

D. 25 miles per hour on all other streets not mentioned above, including park roads, and all streets in the central traffic district;

E. 15 miles per hour on all public alleys and other publicly owned or controlled property not mentioned above, but which is open to vehicular traffic, such as parking lots, access driveways, etc.

Speed limits specified in the Subsections A, B and C of this section shall be posted by the Traffic and Transportation Division on the streets so controlled. (1960 C., § 821.040(H); 1994 C., § 17.08.500; Ord. No. 57831, § 1(part), 1979.)

17.08.510 One-way streets.

Warrant for designation as a one-way street for the purpose of moving traffic on this street in one direction only shall exist when the designation of a street as one-way does not deny the entrance or exit of an abutting property owner. That where possible any adjacent one-way streets are made to be one-way in the opposite direction when one of the following criteria is met:

A. Where the roadway is less than 38 feet wide with parking allowed on both sides of the street; or the roadway is less than 28 feet wide with parking prohibited from one side of the street;

B. Where a roadway wider than 38 feet when an adjacent parallel roadway of similar width is made one-way in the opposite direction, and when the volume of traffic as a two-way street exceeds 1000 vehicles per lane in one direction on an average 24-hour day;

C. Where a street is composed of an odd number of traffic lanes and where full utilization of the number of lanes is necessary to accommodate the volume of traffic;

D. Where minor streets can be made one-way to take traffic away from a complicated area or intersection;

E. Where a street on which the predominant land use is zoned A through E and 65 percent of the registered voters indicate by petition that they desire the street to be made one-way and when the Alderman or Aldermen from the ward or wards, wherein the street is located, indicate that they desire the control. (1960 C., § 821.040(I); 1994 C., § 17.08.510; Ord. No. 57831, § 1(part), 1979.)

17.08.520 Record of regulations—Review board.

A. The Traffic and Transportation Administrator shall keep a record of all regulations adopted by him under the power and authority granted in this chapter. This record shall be kept in his office and be subject to public inspection. The Traffic and Transportation Administrator, in making such regulations as enumerated in Sections 17.08.300 through 17.08.510, except emergency regulations and regulations covering special conditions, shall communicate same to the Board of Aldermen in writing by delivering a copy of such written regulations within 60 days after such regulations are promulgated, to the Clerk of the Board of Aldermen and to the City Register.

B. The Board of Public Service shall act as the City's Administrative Review Board. Any person aggrieved by any action taken by the Traffic and Transportation Administrator under Sections 17.08.300 through 17.08.510, may appeal to the Board of Public Service. An appeal registration fee of $10.00 will be required. The Board, upon hearing such appeal, shall either affirm, modify or set aside any action taken by the Traffic and Transportation Administrator. Unless the Board of Public Service modifies or sets aside any such regulation or unless the Board of Aldermen shall, within 90 days after receipt by the Clerk of the Board of Aldermen of such notice, modify or set aside any such regulation by a duly enacted ordinance, such regulation shall remain in full force and effect until such regulation is altered, modified or set aside by a new regulation promulgated by the Traffic and Transportation Administrator or until such regulation is modified, set aside or authorized by a duly enacted ordinance of the Board of Aldermen. (1960 C., § 821.050; 1994 C., § 17.08.520; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.10

SPEED REGULATIONS

Sections:

17.10.010 State and local speed limits applicable.

17.10.020 Reasonable and prudent speeds.

17.10.030 City-wide speed limit.

17.10.040 Posted speed limits.

17.10.041 Washington Avenue.

17.10.050 Impeding traffic.

17.10.060 Minimum speed limits.

17.10.070 Alley speed limits.

17.10.080 Record of schedule street speed limits.

17.10.090 Parking lots.

17.10.010 State and local speed limits applicable.

It shall be unlawful for any person to drive a vehicle at a speed in excess of any applicable state speed limit or any speed limit established by ordinance. (1960 C., § 824.010; 1994 C., § 17.10.010; Ord. No. 57831, § 1(part), 1979.)

17.10.020 Reasonable and prudent speeds.

No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or roadway conditions. (1960 C., § 824.020; 1994 C., § 17.10.020; Ord. No. 57831, § 1(part), 1979.)

17.10.030 City-wide speed limit.

The City-wide speed limit shall be 25 miles per hour. The speed on any street or park road in this City shall not exceed 25 miles per hour unless otherwise posted. (1960 C., § 824.030; 1994 C., § 17.10.030; Ord. No. 57831, § 1(part), 1979.)

17.10.040 Posted speed limits.

The maximum speed upon sections of roadways, posted by either the Streets Department or the Missouri Department of Transportation, shall be as indicated in the following schedule, and it shall be unlawful to operate a vehicle in excess of said posted maximum speed limits. The speed limits shall be in effect at all

times unless conditions are posted on the sign indicating when the speed limit is in effect. The speed limit schedule is as follows:

A. 15 miles per hour;
B. 20 miles per hour;
C. 25 miles per hour;
D. 30 miles per hour;
E. 35 miles per hour;
F. 40 miles per hour;
G. 45 miles per hour;
H. 50 miles per hour;
I. 55 miles per hour;
J. 60 miles per hour;
K. 65 miles per hour;
L. 70 miles per hour. (1960 C., § 824.040; 1994 C., § 17.10.040; Ord. No. 67988, § 1, 6-16-2008; Ord. No. 63774, § 2, 1996; Ord. No. 57831, § 1(part), 1979.)

17.10.041 Washington Avenue.

Notwithstanding the provisions of any other ordinance to the contrary, the posted speed limit for all traffic traveling on Washington Avenue, from 18th Street to Tucker Boulevard, shall be 25 miles per hour. (1994 C., § 17.10.041; Ord. No. 65996, § 1, 2003.)

17.10.050 Impeding traffic.

No person shall operate a motor vehicle in such a way as to impede the normal and reasonable movement of traffic. (1960 C., § 824.050; 1994 C., § 17.10.050; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.10.060 Minimum speed limits.

Whenever the State Highway Commission or Traffic and Transportation Administrator within their respective jurisdictions determine on the basis of an engineering and traffic investigation that slow speeds on any street or part of a street impede the normal and reasonable movement of traffic, the State Highway Commission or the Traffic and Transportation Administrator may determine and declare a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law and that limit shall be effective when posted upon appropriate fixed or variable signs. (1960 C., § 824.060; 1994 C., § 17.10.060; Ord. No. 57831, § 1(part), 1979.)

17.10.070 Alley speed limits.

No person shall drive a motor vehicle in excess of 15 miles per hour on all public alleys and other publicly owned or controlled property except private roads. (1960 C., § 824.070; 1994 C., § 17.10.070; Ord. No. 57831, § 1(part), 1979.)

17.10.080 Record of schedule street speed limits.

The schedules of streets or parts of streets for which speed limits are controlled by this chapter shall be kept on file in the office of the Register and the Traffic and Transportation Division and are available for examination. (1960 C., § 824.080; 1994 C., § 17.10.080; Ord. No. 57831, § 1(part), 1979.)

17.10.090 Parking lots.

A. There is hereby imposed a speed limit of 15 miles per hour on all vehicles using or traveling in parking lots as that is defined in Section 17.02.380 Revised Code of the City of St. Louis, 1980 as amended.

B. Violation of Subsection A shall be punished as provided by this title. (1994 C., § 17.10.090; Ord. No. 61091, §§ 1, 2, 1988.)

Chapter 17.12

TURNING MOVEMENTS

Sections:

17.12.010 Required position and method.
17.12.020 Limitations on turning around.
17.12.030 Required position and method of turning.

17.12.010 Required position and method.

The required position and method of turning at intersections shall be as follows:

A. *Right Turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway or in a lane designated by signs and/or markings.

B. *Left Turns.* The driver of a vehicle intending to turn left shall approach the turn in the extreme left-hand lane lawfully available or in a lane designated by signs and/or markings to traffic moving in the direction of travel of such vehicle. Whenever practicable the left turn shall be made to the left of the center of the intersection and so as to leave the intersection or other location in the extreme left hand lawfully available to traffic moving in the same direction as such vehicle on the roadway being entered. (1960 C., § 825.010; 1994 C., § 17.12.010; Ord. No. 57831, § 1(part), 1979.)

17.12.020 Limitations on turning around.

A. The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction unless such movement can be made in safety and without interfering with other traffic.

B. No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet.

C. The driver of any vehicle shall not turn the vehicle so as to proceed in the opposite direction upon any street in the central traffic district, at any intersection controlled by a traffic-control signal, or where posted. (1960 C., § 825.020; 1994 C., § 17.12.020; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.341 (2016) Similar provisions

17.12.030 Required position and method of turning.

The Traffic and Transportation Administrator may cause official traffic-control devices to be placed and thereby require and direct that a different course from that specified in this section be traveled by turning vehicles and when such devices are so placed no driver shall turn a vehicle other than as directed and required by such device. (1960 C., § 825.030; 1994 C., § 17.12.030; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.14

EMERGENCY VEHICLES

Sections:

17.14.010 Displayed warning lights.

17.14.020 Exemption for emergency vehicles.

17.14.030 Giving right-of-way to emergency vehicles.

17.14.040 Following emergency vehicle.

17.14.050 Stationary emergency vehicle.

17.14.010 Displayed warning lights.

A. There may not be on the street any vehicle displaying any white or colored light, flashing or nonflashing, except as provided in this chapter.

B. The following class of emergency vehicles, defined in Section 17.02.230, may exhibit lights as stated:

1. Ambulances, whether publicly or privately owned, may exhibit red or white lights, or with a permit from the chief of the organized unit, may exhibit blue lights;

2. A publicly owned vehicle when operated by a fireman may exhibit red or white lights, or with a permit from the chief of the organized unit, may employ blue lights;

3. A publicly owned vehicle when operated by the Missouri State Highway Patrol or a Police Department, may exhibit red or white lights;

4. A publicly owned vehicle when operated by the Missouri Department of Transportation and all other vehicles owned and operated by a public utility, public service company or vehicle used for towing purposes with the approval of the Director of Streets, but only when going to a destination to perform an emergency service, may exhibit red, blue or yellow lights. (1960 C., § 826.010; 1994 C., § 17.14.010; Ord. No. 67324, § 2, 2006; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 307.175 (2016) Sirens and flashing lights

17.14.020 Exemption for emergency vehicles.

A. The driver of an emergency vehicle may park irrespective of the provisions of this division, and if both sounding an audible signal by bell or siren as frequently as may be reasonably necessary and displaying at least one lighted flashing light visible in normal atmospheric conditions for a distance of 500 feet to the front of the vehicle, may:

1. Pass a stop signal or sign without stopping, but only after slowing down to a safe speed; and

2. Exceed the maximum speed but not to endanger the property of or the life or limb of any person; and

3. Disregard regulations governing direction of movement or turning in specified directions.

B. The foregoing provisions shall not relieve the driver of an emergency vehicle from the duty of driving with due regard for the safety of all persons, nor shall such provisions protect the driver from consequences of his reckless disregard for the safety of others, nor shall such provisions relieve the driver from the duty of obeying the directions at the scene of the emergency from any person authorized by this division to direct traffic at the scene of the emergency. (1960 C., § 826.020; 1994 C., § 17.14.020; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.022 (2016) Similar provisions

17.14.030 Giving right-of-way to emergency vehicles.

Upon the immediate approach of a vehicle displaying at least one lighted, flashing light visible under

normal atmospheric conditions from a distance of 500 feet to the front of such vehicle, or upon the immediate approach of a vehicle giving an audible signal by bell or siren, the driver of every other vehicle shall yield the right-of-way, shall immediately drive to a position parallel to and as close as possible to the right hand or curb of the roadway clear of any intersection, and shall stop and remain in such position until the emergency vehicle has passed. (1960 C., § 826.030; 1994 C., § 17.14.030; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.022 (2016) Similar provisions

17.14.040 Following emergency vehicle.

No driver of a vehicle, other than one on official public business, shall follow any emergency vehicle traveling in response to an emergency call closer than three hundred feet, nor to drive into or park such vehicle within the same block where such emergency work is in progress. (1994 C., § 17.14.040; Ord. No. 58448, § 2(part), 1981.)

17.14.050 Stationary emergency vehicle.

Upon approaching a stationary emergency vehicle displaying lighted red, blue, yellow or white lights, the driver of every motor vehicle shall:

A. Proceed with caution and yield the right-of-way, if possible with due regard to safety and traffic conditions, by making a lane change into a lane not adjacent to that of the stationary vehicle, if on a roadway having at least four lanes with not less than two lanes proceeding in the same direction as the approaching vehicle; or

B. Proceed with due caution and reduce the speed of the vehicle, maintaining a safe speed for road conditions, if changing lanes would be unsafe or impossible.

C. Any violation of the provisions of this section shall be subject to a fine of not less than one hundred fifty dollars ($150.00) nor more than five hundred dollars ($500.00). (1994 C., § 17.14.050; Ord. No. 67324, § 3, 2006; Ord. No. 66991, §§ 1, 2, 2005.)

RSMo:

RSMo 304.022 (2016) Similar provisions

Chapter 17.16

MISCELLANEOUS TRAFFIC RULES

Sections:

17.16.010 Crossing fire hose.

17.16.020 Funeral processions.

17.16.030 Permits required—Processions.

17.16.040 Driving upon sidewalk or bicycle/pedestrian right-of-way.

17.16.050 Limitations on backing.

17.16.060 Opening and closing vehicle doors.

17.16.070 Obstruction to driver's view of driving mechanism.

17.16.080 Overloading.

17.16.090 Painted lines or markings.

17.16.100 Driving on right side of roadway—Exceptions.

17.16.110 Passing regulations.

17.16.120 Driving on roadway laned for traffic.

17.16.130 Following too closely.

17.16.140 Failure to yield.

17.16.150 Turning movements and required signals.

17.16.160 Projections on vehicles.

17.16.170 Boarding in motion.

17.16.180 Excessive noise.

17.16.190 Vehicle regulations relating to school buses.

17.16.200 Soliciting riders.

17.16.210 Unattended vehicles.

17.16.220 Transporting animals.

17.16.230 Carts, wagons and equestrians.

17.16.240 Use of vehicle to display advertising.

17.16.250 Placing card, ticket, advertisement or paper on vehicle.

17.16.260 Putting glass, etc., on street prohibited.

17.16.270 Reserved.

17.16.275 Impeding and interfering with pedestrian and vehicular traffic.

17.16.280 Riding on outside of vehicles.

17.16.290 Driving under the influence.

17.16.300 Evidence to determine levels of intoxication.

17.16.310 Breath analysis tests.

17.16.320 Blood alcohol content.

17.16.330 Reckless driving.

17.16.340 Accidents involving death, personal injury or damage to vehicle or property.

17.16.350 Duty to give information and render aid.
17.16.360 Duty upon damaging unattended vehicle or other property.
17.16.370 False reports.
17.16.380 Driver training and testing prohibited—When.
17.16.390 Railroad train not to block street.
17.16.400 Lighted lamps.
17.16.410 Headlight glare.
17.16.415 Sun screening devices applied to the windshield or windows of motor vehicles.
17.16.420 Reckless riding of bicycles.
17.16.430 Unauthorized vehicles on Hodiamont right-of-way prohibited.
17.16.440 Shortcutting traffic prohibited.
17.16.450 Operation of bicycles by officers.
17.16.460 Safety of pedestrians, cyclists, and motor vehicle occupants.

17.16.010 Crossing fire hose.

No vehicle shall be driven over any unprotected hose of a Fire Department, without the consent of a fireman. (1960 C., § 827.010; 1994 C., § 17.16.010; Ord. No. 57831, § 1(part), 1979.)

17.16.020 Funeral processions.

A. *Definitions.* As used in this chapter, the following terms mean:

1. "Funeral director" means a person licensed as a funeral director pursuant to the provisions of RSMo Ch. 333;

2. "Funeral lead vehicle" or "lead vehicle" means any motor vehicle equipped with at least one lighted circulating lamp exhibiting an amber or purple light or lens or alternating flashing headlamps visible under normal atmospheric conditions for a distance of five hundred feet from the front of the vehicle. A hearse or coach properly equipped may be a lead vehicle;

3. "Organized funeral procession" means two or more vehicles accompanying the remains of a deceased person from a funeral establishment, church, synagogue or other place where a funeral service has taken place to a cemetery, crematory or other place of final disposition, or a funeral establishment, church, synagogue or other place where additional funeral services will be performed, if directed by a licensed funeral director from a licensed establishment.

B. *Right-of-Way.*

1. Except as otherwise provided for in this chapter, pedestrians and operators of all other vehicles shall yield the right-of-way to any vehicle which is a part of an organized funeral procession.

2. Notwithstanding any traffic control device or right-of-way provision prescribed by state or local law, when the funeral lead vehicle in an organized funeral procession lawfully enters an intersection, all vehicles in the procession shall follow the lead vehicle through the intersection. The operator of each vehicle in the procession shall exercise the highest degree of care toward any other vehicle or pedestrian on the roadway.

3. An organized funeral procession shall have the right-of-way at all intersections regardless of any traffic control device at such intersections, except that operators of vehicles in an organized funeral procession shall yield the right-of-way to any approaching emergency vehicle pursuant to the provisions of RSMo 304.022 or when directed to do so by a law enforcement officer.

C. *Safety.*

1. All vehicles in an organized funeral procession shall follow the preceding vehicle in the procession as closely as is practical and safe under the conditions.

2. No person shall operate any vehicle as part of an organized funeral procession without the flashing emergency lights of such vehicle being lighted, and shall display in a manner visible to traffic a sign stating funeral.

D. *Vehicles Not in Procession.*

1. Any person who is not an operator of a vehicle in an organized funeral procession shall not:

a. Drive between the vehicles comprising an organized funeral procession while such vehicles are in motion and have the flashing emergency lights lighted pursuant to Subsection C.2 of this section, except when required to do so by a law enforcement officer or when such person is operating an emergency vehicle giving an audible or visual signal;

b. Join a funeral procession for the purpose of securing the right-of-way granted in Subsection C of this section; or

c. Attempt to pass any vehicle in an organized funeral procession, except where a passing lane has been specifically provided.

2. When an organized funeral procession is proceeding through a red signal light as permitted in Subsection B of this section, a vehicle not in the organized

funeral procession shall not enter the intersection unless such vehicle may do so without crossing the path of the funeral procession.

E. *Penalty.* Any violation of the provisions of this section shall be punishable by a fine of one hundred dollars. (1994 C., § 17.16.020; Ord. No. 64872, §§ 2—6, 2000.)

17.16.030 Permits required—Processions.

No procession containing twenty-five (25) or more persons or more than three (3) vehicles excepting funeral processions or consisting of members of and vehicles belonging to either the military forces of the United States, the military forces of Missouri, or the forces of the Police and Fire Department of St. Louis, shall enter upon, occupy, march, proceed, use or block any portion of a public street (for the purpose of parade, demonstration, assembly or other special purpose) without permit, and only in accordance with such permit, issued by the Department of Streets. (1960 C., § 827.030; 1994 C., § 17.16.030; Ord. No. 57831, § 1(part), 1979.)

17.16.040 Driving upon sidewalk or bicycle/pedestrian right-of-way.

A. No person shall drive any vehicle upon a sidewalk except upon a permanent or duly authorized temporary driveway.

B. No person shall drive any vehicle upon any bicycle/pedestrian right-of-way. The provisions of this subsection shall not apply to persons driving emergency vehicles or maintenance vehicles, persons who drive upon any bicycle/pedestrian right-of-way as a means of ingress or egress to a place of business or a residence or persons crossing any bicycle/pedestrian right-of-way at a point designated by Grace Hill Americorp as a river access crossing site. (1960 C., § 827.040; 1994 C., § 17.16.040; Ord. No. 64952, § 2, 2000; Ord. No. 57831, § 1(part), 1979.)

17.16.050 Limitations on backing.

A. The driver of a vehicle shall not back the same unless such movement can be made with safety and without interfering with other traffic.

B. The driver of a vehicle shall not back the same upon any shoulder or roadway of any controlled-access highway. (1960 C., § 827.050; 1994 C., § 17.16.050; Ord. No. 57831, § 1(part), 1979.)

17.16.060 Opening and closing vehicle doors.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, nor shall any person leave a door open on the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers. (1960 C., § 827.060; 1994 C., § 17.16.060; Ord. No. 57831, § 1(part), 1979.)

17.16.070 Obstruction to driver's view of driving mechanism.

A. No person shall drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

B. No passenger in a vehicle (or streetcar) shall ride in such position as to interfere with the driver's or motorman's view ahead or to the sides, or to interfere with the control over the driving mechanism of the vehicle (or streetcar). (1960 C., § 827.070; 1994 C., § 17.16.070; Ord. No. 57831, § 1(part), 1979.)

17.16.080 Overloading.

No driver shall drive any vehicle when any part of the load is likely to either fall upon and litter the street, or cause injury or damage to persons or property. No driver shall permit any part of a load that has fallen on the street to remain on said street. (1960 C., § 827.080; 1994 C., § 17.16.080; Ord. No. 57831, § 1(part), 1979.)

17.16.090 Painted lines or markings.

No driver of any vehicle shall drive across any painted lines or markings so freshly painted as to spread the paint, when such lines or markings are designated by flags, cones or other appropriate devices, unless it is impossible to avoid taking such action. (1960 C., § 827.090; 1994 C., § 17.16.090; Ord. No. 57831, § 1(part), 1979.)

17.16.100 Driving on right side of roadway—Exceptions.

A. Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

2. When an obstruction exists making it necessary to drive to the left of the center of the roadway; provided, any person so doing shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the roadway with such distance as to constitute an immediate hazard;

3. Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon; or

4. Upon a roadway restricted to one-way traffic.

B. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

C. Upon any roadway having four or more lanes for moving traffic and providing for two-way movement of traffic, no vehicle shall be driven to the left of the center line of the roadway, except when authorized by official traffic-control devices designating certain lanes to the left side of the center of the roadway for use by traffic not otherwise permitted to use such lanes, or except as permitted under Subsection A.2. However, this subsection shall not be construed as prohibiting the crossing of the center line in making a left turn into or from an alley, private road or driveway.

D. 1. All truck and commercial vehicular traffic is hereby restricted and limited to right lane operation only, northbound and southbound, on Riverview Drive between its intersection with Hall Street and the City limits.

2. Deviations from subdivision 1 of this subsection shall be permissible only where a disabled vehicle or other lawful obstruction in such right lane makes such deviation an absolute necessity or when moving to the left preparatory to making a left turn. (1960 C., § 827.100; 1994 C., § 17.16.100; Ord. No. 57960, § 1, 1979; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.015 (2016) Similar provisions

17.16.110 Passing regulations.

A. The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to the limitations and exceptions hereinafter stated:

1. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle;

2. Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

B. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

1. When the vehicle overtaken is making or about to make a left turn;

2. When drivers are moving in marked traffic lanes they may pass on the right hand side where a marked lane is open.

C. The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. Such movement shall not be made by driving off the roadway.

D. No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to an authorized lane of travel as soon as practicable and in the event the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within 200 feet of any approaching vehicle.

E. No vehicle shall be driven on the left side of the roadway under the following conditions:

1. When approaching or upon the crest of a grade or a curve in the roadway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

2. When approaching within 100 feet of or traversing any intersection or railroad grade crossing;

3. When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

F. The foregoing limitations shall not apply upon a one-way roadway nor under the conditions described in nor to the driver of a vehicle turning left into or from an alley, private road or driveway.

G. Where signs or markings are in place to define a no-passing zone, no driver shall at any time drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone throughout its length. (1960 C., § 827.110; 1994 C., § 17.16.110; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.016 (2016) Similar provisions

17.16.120 Driving on roadway laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules in addition to all others consistent herewith shall apply:

A. A vehicle shall be driven in traffic lanes where marked, shall not drive on shoulders or across medians, and shall not weave in and out of lanes of traffic.

B. Official traffic-control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and drivers of vehicles shall obey the directions of every such traffic-control device.

C. Official traffic control devices may be installed prohibiting the changing of lanes on sections of roadway and drivers of vehicles shall obey the directions of every such device. (1960 C., § 827.120; 1994 C., § 17.16.120; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.16.130 Following too closely.

A. The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic conditions upon the roadway.

B. The driver of any truck or motor vehicle drawing another vehicle when traveling upon a roadway outside of a business or residence district and which is following another truck or motor vehicle drawing another vehicle shall, whenever conditions permit, leave sufficient space so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a truck or motor vehicle drawing another vehicle from overtaking and passing any vehicle or combination of vehicles.

C. Motor vehicles being driven upon any roadway outside of a business or residence district in a caravan or motorcade whether or not towing other vehicles shall be so operated as to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle to enter and occupy such space without danger. The provision shall not apply to funeral processions. (1960 C., § 827.130; 1994 C., § 17.16.130; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.017, 304.044 (2016) Similar provisions

17.16.140 Failure to yield.

A. When two vehicles approach or enter an intersection from different streets at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

B. The driver of a vehicle intending to turn to the left within an intersection or into an alley, private road, or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.

C. After having stopped, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another street so closely as to constitute an immediate hazard during the time when such driver is moving across or within the intersection or junction of streets.

D. Vehicle Entering Streets. The driver of a vehicle about to enter or cross a street from any place other than another street shall yield the right-of-way to all vehicles approaching on the streets to be entered or crossed.

E. It shall be unlawful for a driver to enter any intersection of streets under traffic conditions which prohibit passage through such intersections. Provided further, at intersections where a traffic control signal confers the right-of-way, such signal shall not become controlling until such time as traffic conditions permit lawful, continuous passage through such intersection. (1960 C., § 827.140; 1994 C., § 17.16.140; Ord. No. 58448, § 2(part), 1981; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.351 (2016) Similar provisions

17.16.150 Turning movements and required signals.

A. No person shall turn a vehicle or move right or left upon a roadway unless and until such movement

can be made with reasonable safety nor without giving an appropriate signal in the manner hereinafter provided.

B. A signal of intention to turn or move right or left when required shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning.

C. No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

D. Every motor vehicle, trailer, semitrailer, and vehicle in tow, shall be equipped with two (2) or more operable stop lights, mounted on the rear and unobstructed; except that one (1) operable stop light is authorized on any vehicle equipped with only one (1) when it was manufactured.

E. Every motor vehicle, trailer, semitrailer, and vehicle in tow, shall be equipped with an operable flashing turn signal lamp for the left and for the right, visible to the front and rear, and unobstructed, except that passenger cars and trucks less than eighty (80) inches in width, manufactured or assembled prior to January 1, 1953, need not be equipped with electric turn signal lamps.

F. A trailer or vehicle in tow need not be equipped with operable turn signals or stop lights if the trailer or vehicle in tow does not interfere with a clear view of a hand signal given by the operator of the towing vehicle or of the signaling devices of the towing vehicle.

G. Any stop or turn signal, when required herein, shall be given either by means of the required signal lights or by the required hand signals; except that when the required hand signals cannot be seen by traffic immediately to the rear, due to vehicle design or obstructions, then signal lights must be operable and must be used by the operator of said vehicle.

H. Hand and arm signals shall be as follows:

1. Signal for every right turn either by extending his left arm at an angle above horizontal so that it may be seen from the rear, or operate an electric or mechanical signal device to indicate a right turn.

2. Signal for every left turn either by extending his left arm in a horizontal position so that it may be seen from the rear, or operate an electric or mechanical turn signal device to indicate a left turn.

3. When reducing speed or stopping, either extend the left arm at an angle below the horizontal position or operate an electric stop lamp or light to clearly indicate same.

I. When operable turn signal lights or stop lights are required on a vehicle, no vehicle shall be driven unless the required lights are in operating condition. (1960 C., § 827.150; 1994 C., § 17.16.150; Ord. No. 60253, § 2, 1987; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.16.160 Projections on vehicles.

All vehicles carrying poles or other objects, which project more than five feet from the rear of such vehicles, shall, during the period when lights are required by this chapter to carry a red light at or near the rear end of the pole or other object so projecting. At other times a red flag or cloth, not less than sixteen inches square, shall be displayed at the end of such projection. (1960 C. 827.160; 1994 C., § 17.16.160; Ord. No. 57831, § 1(part), 1979.)

17.16.170 Boarding in motion.

The driver of a vehicle shall not permit persons to board or alight therefrom while such vehicle is in motion. (1960 C., § 827.170; 1994 C., § 17.16.170; Ord. No. 57831, § 1(part), 1979.)

17.16.180 Excessive noise.

No driver or passenger in a vehicle shall use or allow any unnecessary excessive noise or use or allow to be used any radio, loud speaker, sound amplifier, or another machine or device, whether portable or installed on the vehicle, for the producing of sound or reproducing sound at any time with louder volume than is necessary for convenient, normal hearing for the person or persons who are in the vehicle in which the machine or device is being used or operated and who are voluntary listeners. The operation of any radio, loud speaker, sound amplifier, or other machine or device for the producing or reproducing of sound in a manner as to be plainly audible at a distance of more than one hundred feet from such machine or device shall be excessive and shall be prima facie evidence of a violation of this section.

Any person who enters a plea of guilty or is found guilty of a violation of this section shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by a term of imprisonment of not more than ninety (90)

days or both such fine and imprisonment. (1960 C., § 827.190; 1994 C., § 17.16.180; Ord. No. 63796, § 2, 1996; Ord. No. 57831, § 1(part), 1979.)

17.16.190 Vehicle regulations relating to school buses.

A. The driver of a vehicle upon meeting or overtaking from either direction any school bus which has stopped on the roadway for the purpose of receiving or discharging any school children and whose driver has given the signal to stop by actuating his flashing lights and stop sign, shall stop the vehicle before reaching such school bus and shall not proceed until such school bus resumes motion, or until signaled by its driver to proceed.

B. Every bus used for the transportation of school children shall bear upon the front and rear thereon a plainly visible sign containing the words "school bus" in letters not less than eight inches in height. Each bus shall have lettered on the rear in plain and distinct type the following: "State Law: Stop while bus is loading and unloading." Each school bus subject to the provisions of RSMo Ch. 304 shall be equipped with a mechanical and electrical signaling device, which will display a signal plainly visible from the front and rear and indicating intention to stop.

C. No driver of a school bus shall take on or discharge passengers at any location upon a roadway consisting of four or more lanes of traffic, whether or not divided by a median or barrier, in such manner as to require the passengers to cross more than two lanes of traffic; nor shall he take on or discharge passengers while the vehicle is upon the road or roadway proper unless the vehicle so stopped is plainly visible for at least three hundred feet in each direction to drivers of other vehicles upon the roadway and then only for such time as is actually necessary to take on and discharge passengers. When it is necessary for passengers of a school bus to stand in, walk on, or cross a road or roadway, every driver of such school bus discharging or boarding such passengers shall actuate all warning equipment.

D. The driver of a vehicle upon a street with separated roadways need not stop upon meeting or overtaking a school bus which is on a different roadway, which is proceeding in the opposite direction on a street containing four or more lanes of traffic or which is stopped in a loading zone constituting a part of, or adjacent to, a limited or controlled access street at a point where pedestrians are not permitted to cross the roadway. (1960 C., § 827.200; 1994 C., § 17.16.190; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.050 (2016) Similar provisions

17.16.200 Soliciting riders.

No operator or driver of any bus, taxicab or other commercial motor vehicle shall park upon the street to solicit patronage. (1960 C., § 827.210; 1994 C., § 17.16.200; Ord. No. 57831, § 1(part), 1979.)

17.16.210 Unattended vehicles.

No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key from the ignition, effectively setting the brake thereon and, when standing upon any grade, turning the front wheels to the curb or side of the roadway. (1960 C., § 827.220; 1994 C., § 17.16.210; Ord. No. 57831, § 1(part), 1979.)

17.16.220 Transporting animals.

No person shall transport, cause to be transported or permit his vehicle to be used to transport any animal outside of any vehicle unless such animal is protected by a device which will prevent the animal from escaping from, falling off of or being thrown from such vehicle. (1960 C., § 827.230; 1994 C., § 17.16.220; Ord. No. 57831, § 1(part), 1979.)

17.16.230 Carts, wagons and equestrians.

A. Every person riding an animal or driving any animal-drawn vehicle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter, except those provisions of this chapter which by their very nature can have no application.

B. Every person riding an animal or driving any animal-drawn vehicle is hereby prohibited from use of limited access highways.

C. Any person who shall place or drive or cause to be placed or driven, upon any street or highway of this City any horse-drawn vehicle whatsoever, whether in motion or at rest, shall after sunset to one-half hour before sunrise or when street lights are lighted, have attached to every such vehicle at the rear thereof a red light or red reflecting device of not less than three inches in diameter of effective area or its equivalent in area. When such device shall consist of reflecting but-

tons there shall be no less than seven of said buttons covering an area equal to a circle with a three-inch diameter. The total subtended effective angle of reflection of every such device shall be no less than sixty degrees and the spread and efficiency of the reflected light shall be sufficient for the reflected light to be visible to the driver of any motor vehicle approaching such horse-drawn vehicle from the rear at a distance of not less than five hundred feet. (1960 C., § 827.240; 1994 C., § 17.16.230; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.)

17.16.240 Use of vehicle to display advertising.

No person shall operate on or park on any street, any vehicle on which are displayed any signs or pictures which altogether have a total area larger than twelve square feet. This section shall not apply to vehicles operating in compliance with a permit issued by the City to display such signs or pictures. (1960 C., § 827.250; 1994 C., § 17.16.240; Ord. No. 57831, § 1(part), 1979.)

17.16.250 Placing card, ticket, advertisement or paper on vehicle.

A. It shall be unlawful for any person other than a police officer or a meter maid to place or cause to be placed in or upon any vehicle on any street, or alley, any card, ticket, advertisement, or paper.

B. It shall be unlawful for any person, other than the legal owner or his agent, to remove, alter, or deface a parking violation notice placed on a vehicle by a police officer or meter maid. (1960 C., § 827.260; 1994 C., § 17.16.250; Ord. No. 58448, § 1(part), 1981; Ord. No. 57831, § 1(part), 1979.) See *Krantz v. City of Fort Smith,* 160 F.3d 1214 (8th Cir. 1998), cert. denied, 527 U.S. 1037 (1999).

17.16.260 Putting glass, etc., on street prohibited.

A. No person shall throw or deposit upon any street any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or cause damage to a vehicle.

B. Any person who drops or permits to be dropped or thrown upon any street any destructive or injurious material shall immediately remove or cause same to be removed.

C. Any person removing a wrecked or damaged vehicle from a street shall remove any glass or other injurious substance dropped upon the highway from such vehicle. (1960 C., § 827.270; 1994 C., § 17.16.260; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.160 (2016) Similar provisions

17.16.270 Reserved.

Editor's Note:

Ord. No. 69282, § 2, adopted Nov. 16, 2012, repealed § 17.16.270 which pertained to demonstrations on or near streets and derived from § 827.280 of the 1960 Code and Ord. No. 57831, § 1(part), 1979.

17.16.275 Impeding and interfering with pedestrian and vehicular traffic.

A. No person, or persons congregating with another or others, shall stand or otherwise position himself or herself in any public place in such a manner as to obstruct, impede, interfere, hinder or delay the reasonable movement of vehicular or pedestrian traffic.

B. No person, or persons congregating with another or others, shall stand or otherwise position himself or herself in any entrance, exit, corridor or passage of any public building in such a manner as to obstruct, impede, interfere, hinder or delay the reasonable movement of vehicular or pedestrian traffic.

C. No person, or persons congregating with another or others, shall stand or otherwise position himself or herself at the entrance or exit to a private building, including the driveway, entrance to a garage and entrance to a parking pad, in such a manner as to obstruct, impede, interfere, hinder or delay the reasonable movement of vehicular or pedestrian traffic.

D. No person, or persons congregating with another or others, shall for the purpose of selling or offering for sale goods or services without a license; or soliciting a ride, employment, business, or contributions from vehicular traffic:

1. Stand or otherwise position himself or herself in any public place;

2. Stand or otherwise position himself or herself at the entrance or exit to a private building or public building, including the driveway, entrance/exit to a garage and entrance/exit to a parking pad.

E. No person who has committed an act or acts within the description of Subsections A through D above, upon being given an order by a police officer, state trooper, marshal, ranger, firefighter, Missouri authorized security guard, or other authorized law enforcement or emergency response personnel to dis-

perse, clear, or otherwise move, shall fail or refuse to obey such order. Such failure or refusal shall constitute the separate offense of failure to obey a dispersing order by a police officer, state trooper, marshal, ranger, firefighter, Missouri authorized security guard, or other authorized law enforcement or emergency response personnel.

F. Any person violating any of the provisions of this section shall, for each such violation, be guilty of a Class A misdemeanor and upon conviction shall be subject to a fine of no less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00) or by imprisonment for not more than ninety days, or by both fine and imprisonment. (1994 C., § 17.16.275; Ord. No. 69282, § 4, 11-16-2012.)

Editor's Note:

Ordinance 69282 included the following:

SECTION THREE. DEFINITIONS.

As used herein:

Public Place means a street; roadway; sidewalk; alley; highway; bridge; overpass; passageway; driveway entrance; entrance or exit to a parking lot or garage; bus stop; park; median; and property (whether public or private) that is immediately adjacent to a street, roadway, sidewalk, alley, highway, bridge, overpass, passageway, driveway entrance, entrance or exit to a parking lot or garage, bus stop, park or median.

Public Building means any structure that has a business license from the City of St. Louis; conducts governmental business on behalf of the United States of America, State of Missouri or City of St. Louis, or other authorized governmental entity; non-profit entity; restaurant, banks, shops, gyms, financial institutions, libraries, museums, hotels and other entities that invite the public as customers, patrons or visitors; place of employment; schools; medical facilities; places of worship; and residential property of more than 4 dwelling units.

Private Building or Private Place means any residential property or lot of fewer than 5 dwelling units.

Cases:

Ordinance held unconstitutional. *Langford v. City of St. Louis*, 2020 U.S.Dist.LEXIS 46330 (E.D.Mo. 2020) (appeal pending).

17.16.280 Riding on outside of vehicles.

No person shall ride upon the exterior of any motor vehicle, except motorcycles, while it is in motion except where such riding is necessary to determine the need for repairs or adjustments to such motor vehicle. (1960 C., § 827.290; 1994 C., § 17.16.280; Ord. No. 57831, § 1(part), 1979.)

17.16.290 Driving under the influence.

A. No person shall operate a motor vehicle within the City who is under the influence of intoxicating liquor.

B. No person who is under the influence of any controlled substance, any glue, cement, shellac thinner, or any other quick-drying solvent or similar product which can induct a state of euphoria when inhaled, or any other drug which renders him incapable of safely operating a motor vehicle, shall operate a motor vehicle upon the streets of the City. The fact that any person charged with violation of this division is or has been entitled to use such drugs under the laws of this state shall not constitute a defense against any charge of violating this division. (1960 C., § 827.300; 1994 C., § 17.16.290; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 577.010 (2016) Similar provisions

17.16.300 Evidence to determine levels of intoxication.

A. Upon the trial arising out of acts alleged to have been committed by any person while operating a vehicle while under the influence of intoxicating liquor, the amount of alcohol in the person's blood at the time alleged as shown by chemical analysis of the person's blood, urine, or breath is admissible into evidence. Such evidence shall be construed as follows:

1. If there was five hundredths of one percent or less by weight in his blood, it shall be presumed that the person was not under the influence of intoxicating liquor.

2. If there was in excess of five hundredths of one percent but less than eight hundredths of one percent by weight of alcohol in his blood, the fact shall not give rise to any presumption that the person was or was not under the influence of an intoxicating liquor, but the fact may be considered with other competent evidence in determining whether the person was or was not under the influence of an intoxicating liquor.

3. If there was eight hundredths of one percent or more by weight of alcohol in the person's blood, this shall be prima facie evidence that the person was under the influence of an intoxicating liquor. Percent by weight of alcohol in the blood shall be based upon grams of alcohol per one hundred milliliters of blood.

B. The foregoing provisions of this section shall not be construed as limiting the introduction of any other competent evidence bearing upon the question of whether the person was under the influence of an intoxicating liquor. (1960 C., § 827.310; 1994 C., § 17.16.300; Ord. No. 65305, § 1(part), 2001; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 577.037 (2016) Similar provisions

17.16.310 Breath analysis tests.

A. Any person who operates a motor vehicle within the City shall be deemed to have given consent to, subject to the provisions of Section 17.16.300, a chemical test of his breath for the purpose of determining the alcoholic content of his blood if arrested for any offense arising out of acts which the arresting officer had reasonable grounds to believe were committed while the person was driving a motor vehicle while under the influence of an intoxicating liquor. The test shall be administered by or at the direction of a law enforcement officer whenever the person has been arrested for the offense.

B. Chemical analysis of the person's breath, to be considered valid under the provisions of Section 17.16.300 and this section, shall be performed according to methods approved by the State Division of Health by a person possessing a valid permit issued by the State Division of Health for this purpose. The State Division of Health is authorized to approve satisfactory techniques or methods, to ascertain the qualifications and competence of individuals to conduct analysis, and to issue permits which shall be subject to termination or revocation by the State Division of Health.

C. The person tested may have a physician, or a qualified technician, chemist, registered nurse, or other qualified person of his own choosing administer a test in addition to any administered at the direction of a law enforcement officer. The failure or inability to obtain an additional test by a person shall not preclude the admission of evidence relating to the test taken at the direction of a law enforcement officer. (1960 C., § 827.320; 1994 C., § 17.16.310; Ord. No. 57831, § 1(part), 1979.)

17.16.320 Blood alcohol content.

A. No person shall operate a motor vehicle within the City when the person has eight hundredths of one percent or more by weight of alcohol in his blood. As used in this section, percent by weight of alcohol in the blood shall be based upon grams of alcohol per one hundred milliliters of blood and may be shown by chemical analysis of the person's blood, breath, saliva or urine. This chemical analysis shall be admitted into evidence.

B. For the purpose of determining the alcoholic content of a person's blood under this section, the test shall be conducted in accordance with the provisions of Section 17.16.310. (1960 C., § 827.330; 1994 C., § 17.16.320; Ord. No. 65305, § 1(part), 2001; Ord. No. 57831, § 1(part), 1979.)

17.16.330 Reckless driving.

Any person who drives any vehicle in willful or wanton disregard for the safety of persons or property is guilty of reckless driving. (1960 C., § 827.340; 1994 C., § 17.16.330; Ord. No. 57831, § 1(part), 1979.)

17.16.340 Accidents involving death, personal injury or damage to vehicle or property.

The driver of any vehicle involved in an accident resulting in injury to or death of any person or damage to property shall immediately stop such vehicle at the scene of such accident or as close thereto as possible, but shall then forthwith return to and in every event shall remain at the scene of the accident until he has fulfilled the following requirements. (1960 C., § 827.350(part); 1994 C., § 17.16.340; Ord. No. 57831, § 1(part), 1979.)

17.16.350 Duty to give information and render aid.

A. The driver of any vehicle involved in an accident resulting in injury to or death of any person or damage to any vehicle or other property which is driven or attended by any person shall give his name, address and registration number of the vehicle he is driving, and shall upon request and if available exhibit his license or permit to any person injured in such accident or to the driver or occupant of or person attending any vehicle or other property damaged in such accident and shall give such information and upon request exhibit his license or permit to any police officer at the scene of the accident or who is investigating the accident and shall render to any person injured in such accident reasonable assistance, including the carrying or the making of arrangements for the carrying of such person to a physician, surgeon, or hospital for medical or

surgical treatment if it is apparent that such treatment is necessary, or if such carrying is requested by the injured person.

B. In the event that none of the persons specified are in condition to receive the information to which they otherwise would be entitled under this section and no police officer is present, the driver of any vehicle involved in such accident after fulfilling all other requirements of this section in so far as possible on his part to be performed, shall forthwith report such accident to the nearest office of a duly authorized police authority and submit thereto the information specified in Subsection A of this section. (1960 C., § 827.350(part); 1994 C., § 17.16.350; Ord. No. 57831, § 1(part), 1979.)

17.16.360 Duty upon damaging unattended vehicle or other property.

The driver of any vehicle which collides with or is involved in an accident with any vehicle or other property which is unattended resulting in any damage to such other vehicle or other property shall immediately stop and shall there either locate and notify the operator or owner of such vehicle or other property of his name, address and the registration number of the vehicle he is driving or shall attach securely in a conspicuous place in or on such vehicle or other property a written notice giving his name, address and the registration number of the vehicle he is driving and shall without unnecessary delay notify the nearest office of a duly authorized police authority. Every such stop shall be made without obstructing traffic more than is necessary. (1960 C., § 827.360; 1994 C., § 17.16.360; Ord. No. 57831, § 1(part), 1979.)

17.16.370 False reports.

A person shall not give information on oral or written reports as required in this division knowing or having reason to believe that such information is false. (1960 C., § 827.370; 1994 C., § 17.16.370; Ord. No. 57831, § 1(part), 1979.)

17.16.380 Driver training and testing prohibited—When.

It shall be unlawful for any person, partnership or corporation to give or cause to be given instruction or testing in motor vehicle operation with a student driver or operator or applicant for a driver's license in control or partial control of any motor vehicle under the following circumstances or conditions:

A. At any time within four hundred feet of a public park measured away from the farthest curb lines of City streets bounding any public park;

B. After 7:30 a.m. and before 4:30 p.m. within four hundred feet of any public or private elementary school on days of regular school attendance measured away from the farthest curb lines of City streets bounding any such school or the outer periphery of said school premises, whichever is farther. (1960 C., § 827.380; 1994 C., § 17.16.380; Ord. No. 57831, § 1(part), 1979.)

17.16.390 Railroad train not to block street.

A. *Blocking Street.* No railroad company, operator or person directing the operation of any railroad train shall operate the same in such a manner as to prevent the use of any street for the purpose of travel for a period of time longer than 5 minutes. Upon any alleged violation of this division, the Police Department shall issue a summons against the railroad company and serve a copy of the summons on the engineer or conductor. A police report shall be made and presented to the City Counselor's warrant office. An agent specified by the railroad company shall be notified of the alleged violation by mail. This section shall not apply to trains or cars in motion other than those engaged in switching.

B. *Penalty.* Any railroad company, operator or person who shall violate the provisions of this section shall be fined five hundred dollars ($500.00). (1960 C., § 827.390; 1994 C., § 17.16.390; Ord. No. 57831, § 1(part), 1979.)

17.16.400 Lighted lamps.

No person shall operate or be in custody of a motor vehicle from a half-hour after sunset to a half-hour before sunrise and at any other time when there is not sufficient light to render clearly discernible persons and vehicles on the highway at a distance of five hundred feet ahead unless the lighted lamps and illuminating devices as required by this division are lit. (1960 C., § 827.400; 1994 C., § 17.16.400; Ord. No. 57831, § 1(part), 1979.)

17.16.410 Headlight glare.

It shall be unlawful for the driver of any vehicle, whether following or approaching from the front of another vehicle, to direct or permit the headlights or spotlights to glare upward so as to dazzle the vision of driver of such other vehicle. (1960 C., § 827.410; 1994 C., § 17.16.410; Ord. No. 57831, § 1(part), 1979.)

17.16.415 Sun screening devices applied to the windshield or windows of motor vehicles.

A. No person shall operate any motor vehicle registered in the State of Missouri on any highway, road, street, or alleyway with a sun screening device, in conjunction with safety glazing material, applied to the vehicle's windshield, sidewings, or windows located immediately to the left and right of the driver that does not permit a light transmission of thirty-five percent or more plus or minus three percent and a luminous reflectance of thirty-five percent or less plus or minus three percent without a permit granted by the Missouri Department of Public Safety because of a serious medical condition of the permittee.

B. This section shall not prohibit labels, stickers, decalcomania, or informational signs on vehicles or the application of tinted or solar screening material to recreational vehicles provided that such material does not interfere with the driver's normal view of the road. This section shall not prohibit factory-installed tinted glass, the equivalent replacement thereof, or tinting material applied to the upper portion of the vehicle's windshield which is normally tinted by the manufacturer of vehicle safety glass.

C. Any vehicle licensed with an historical license plate shall be exempt from the requirements of this section.

D. Any person who violates the provisions of this section shall be subject to of a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment not more than ninety (90) days or both a fine and term of imprisonment. (1994 C., § 17.16.415; Ord. No. 69184, §§ 1, 2, 7-2-2012.)

17.16.420 Reckless riding of bicycles.

No person shall drive any self-propelled vehicle or bicycle upon a parking lot carelessly and heedlessly in willful or wanton disregard of the rights and safety of others, or without due caution and at a speed or in a manner so as to endanger any person or property. (1960 C., § 827.420; 1994 C., § 17.16.420; Ord. No. 57831, § 1(part), 1979.)

17.16.430 Unauthorized vehicles on Hodiamont right-of-way prohibited.

No person shall drive or park an unauthorized vehicle on the Hodiamont right-of-way. (1960 C., § 827.430; 1994 C., § 17.16.430; Ord. No. 57831, § 1(part), 1979.)

17.16.440 Shortcutting traffic prohibited.

No driver shall operate a motor vehicle on any private lot, road, driveway, parking lot or any area which is not a roadway, for the purpose of avoiding travel upon the right-of-way between one highway or roadway and the same or another highway or roadway, or for the purpose of avoiding a lawfully erected barricade closing a highway or roadway. (1994 C., § 17.16.440; Ord. No. 63697, § 1, 1996.)

17.16.450 Operation of bicycles by officers.

Any ordinance to the contrary notwithstanding, police officers may operate bicycles upon any sidewalk within the City of St. Louis, as necessary, to properly perform their official duties. (1994 C., § 17.16.450; Ord. No. 65011, § 1, 2000.)

17.16.460 Safety of pedestrians, cyclists, and motor vehicle occupants.

A. *Definitions.*

1. "Bicyclist" means any device propelled by human power upon which a person may ride, having two tandem wheels except scooters and similar devices.

2. "Pedestrian" means:

a. A person who is on foot; or

b. A person who is using any means of conveyance propelled by human power other than a bicycle; or

c. A person who is using an electric personal assistive mobility device; or

d. A person who is operating a self-propelled wheelchair, motorized tricycle, or motorized quadricycle to act as a pedestrian and, by reason of physical disability, is otherwise restricted in movement as or unable to move about on foot.

3. "Motor vehicle" means every device, in, upon, or by which any person or property is or may be transported or drawn upon a roadway, excepting motorized bicycles and devices moved by human power or used exclusively upon rails.

4. "Motor vehicle occupant" means all persons within a motor vehicle, whether the driver who is driving the motor vehicle, the person in actual physical control of the motor vehicle, or a passenger not driving or in actual physical control of the motor vehicle.

B. *Prohibiting the Endangerment of Pedestrians and Bicyclists.* A person commits the offense of endangerment of a pedestrian, bicyclist or motor vehicle occupant if the person:

1. Throws an object, directs a projectile, or operates a vehicle (whether motorized or not) at or in the

direction of any person riding a bicycle, walking, running or operating a wheelchair for the purpose of frightening, disturbing or injuring the person; or

2. Threatens any person riding a bicycle, walking, running or operating a wheelchair or occupying a motor vehicle for the purpose of frightening or disturbing that person; or

3. Knowingly places a person riding a bicycle, walking, running or operating a wheelchair or occupying a motor vehicle in apprehension of immediate physical injury; or

4. Knowingly engages in conduct that creates a risk of death or serious physical injury to a person riding a bicycle, walking, running or operating a wheelchair, or occupying a motor vehicle.

C. *Penalty Clause.* Any person who violates the provisions of this section shall be subject to of a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or a term of imprisonment not more than ninety (90) days or both a fine and term of imprisonment. (1994 C., § 17.16.460; Ord. No. 69264, §§ 1—3, 11-2-2012.)

Chapter 17.18

MOTORCYCLES AND MOTORIZED BICYCLES

Sections:

17.18.010	**Traffic laws apply to motorcyclists and motorized bicyclists.**
17.18.020	**Riding on motorcycles or motorized bicycles.**
17.18.030	**Operating motorcycles or motorized bicycles on roadways laned for traffic.**
17.18.040	**Clinging to other vehicles.**
17.18.050	**Footrests and handlebars.**
17.18.060	**Equipment for motorcycle or motorized bicycle riders.**
17.18.070	**Motorized bicycles—Restrictions.**
17.18.080	**Seizure of motorized bicycles.**

17.18.010 Traffic laws apply to motorcyclists and motorized bicyclists.

Every person operating a motorcycle or motorized bicycle shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of any other vehicle under this title, except as to special regulations in this chapter and except as to those provisions of this title which by their nature can have no application. (1960 C., § 828.010; 1994 C., § 17.18.010; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.020 Riding on motorcycles or motorized bicycles.

A. A person operating a motorcycle or motorized bicycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle or motorized bicycle unless such vehicle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the vehicle at the rear or side of the operator.

B. A person shall ride upon a motorcycle or motorized bicycle only while sitting astride the seat, facing forward, with one leg on each side of the vehicle.

C. No person shall operate a motorcycle or motorized bicycle while carrying any package, bundle or other article which prevents him from keeping both hands on the handlebars.

D. No operators shall carry any person, nor shall any person ride, in a position that will interfere with the operation or control of the motorcycle or motorized bicycle or the view of the operator. (1960 C., § 828.020; 1994 C., § 17.18.020; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.030 Operating motorcycles or motorized bicycles on roadways laned for traffic.

A. All motorcycles or motorized bicycles are entitled to full use of a lane and no motor vehicle shall be driven in such a manner as to deprive any motorcycle or motorized bicycle of the full use of a lane. This subsection shall not apply to motorcycles or motorized bicycles operated two abreast in a single lane.

B. The operator of a motorcycle or motorized bicycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken.

C. No person shall operate a motorcycle or motorized bicycle between lanes of traffic or between adjacent lines or rows of vehicles.

D. Motorcycles or motorized bicycles shall not be operated more than two abreast in a single lane.

E. Subsections B and C shall not apply to Police Officers in the performance of their official duties. (1960 C., § 829.030; 1994 C., § 17.18.030; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.040 Clinging to other vehicles.

No person riding upon a motorcycle or motorized bicycle shall attach himself or the motorcycle or motorized bicycle to any vehicle on a roadway. (1960 C., § 828.040; 1994 C., § 17.18.040; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.050 Footrests and handlebars.

A. Any motorcycle or motorized bicycle carrying a passenger, other than in a sidecar or enclosed cab, shall be equipped with footrests for such passenger.

B. No person shall operate any motorcycle or motorized bicycle with handlebars more than 15 inches in height above that portion of the seat occupied by the operator. (1960 C., § 828.050; 1994 C., § 17.18.050; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.060 Equipment for motorcycle or motorized bicycle riders.

A. No person shall operate or ride upon a motorcycle or motorized bicycle unless such person is wearing protective headgear which complies with standards established by the Missouri Director of Revenue.

B. No person shall operate or ride upon a motorized bicycle unless such motorized bicycle is equipped with a red or orange flag measuring not less than twelve inches by twelve inches. Such flag shall extend not less than forty-eight inches in height above that portion of the seat occupied by the operator.

C. This section shall not apply to persons riding within an enclosed cab or on a golf cart. (1960 C., § 828.060; 1994 C., § 17.18.060; Ord. No. 66692, § 2(part), 2005; Ord. No. 57831, § 1(part), 1979.)

17.18.070 Motorized bicycles—Restrictions.

A. No person shall operate a motorized bicycle on any highway or street in this City unless the person has a valid license to operate a motor vehicle. No person shall allow or permit a person who does not have a valid license to operate a motor vehicle to operate a motorized bicycle.

B. No motorized bicycle may be operated on any public thoroughfare located within this state which has been designated as part of the federal interstate highway system. (1994 C., § 17.18.070; Ord. No. 66692, § 2(part), 2005.)

17.18.080 Seizure of motorized bicycles.

Any motorized bicycle operated by a minor under the age of 16 years, who is unaccompanied by the registered owner of such motorized bicycle, shall be seized and held until proof of ownership is established. (1994 C., § 17.18.080; Ord. No. 66692, § 2(part), 2005.)

Chapter 17.20

PEDESTRIANS' RIGHTS AND DUTIES

Sections:

17.20.010 Obedience to traffic-control devices and traffic laws.
17.20.020 Right-of-way in crosswalks.
17.20.030 Crossing at other than crosswalks.
17.20.040 Crossing prohibited—When.
17.20.050 Drivers to exercise due care.
17.20.060 Pedestrians to use right half of crosswalks.
17.20.070 Pedestrians on streets.
17.20.080 Soliciting rides or business.
17.20.090 Right-of-way on sidewalks.
17.20.100 Pedestrians yield to authorized emergency vehicles.
17.20.110 Blind pedestrian right-of-way.
17.20.120 Roller skates, coaster and similar devices restricted.
17.20.125 Roller skates, in-line skates and skateboards prohibited in certain area.
17.20.130 Under influence of alcohol or drugs.
17.20.140 Penalty clause.

17.20.010 Obedience to traffic-control devices and traffic laws.

A. A pedestrian shall obey the instructions of any official traffic-control device specifically applicable to him, unless otherwise directed by a police officer.

B. Pedestrians shall be subject to traffic and pedestrian control signals as provided in Chapter 17.08 of this Code.

C. At all other places, pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in this section. (1960 C., § 829.010; 1994 C., § 17.20.010; Ord. No. 57831, § 1(part), 1979.)

17.20.020 Right-of-way in crosswalks.

A. When traffic-control signals are not in place or not in operation the driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the

roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

B. No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close as to constitute an immediate hazard.

C. Whenever any vehicle is stopped at a marked crosswalk or at an unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle. (1960 C., § 829.020; 1994 C., § 17.20.020; Ord. No. 57831, § 1(part), 1979.)

17.20.030 Crossing at other than crosswalks.

A. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

B. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

C. No pedestrian shall cross a roadway intersection diagonally unless authorized by official traffic-control devices; and, when authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements. (1960 C., § 829.030; 1994 C., § 17.20.030; Ord. No. 57831, § 1(part), 1979.)

17.20.040 Crossing prohibited—When.

A. No pedestrian shall cross a roadway other than in a crosswalk in the central traffic district.

B. No pedestrian shall cross a roadway other than in a crosswalk unless said crosswalk is more than one hundred and fifty (150) feet distant. (1960 C., § 829.040; 1994 C., § 17.20.040; Ord. No. 57831, § 1(part), 1979.)

17.20.050 Drivers to exercise due care.

Notwithstanding other provisions of this chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused, incapacitated or intoxicated person. (1960 C., § 829.050; 1994 C., § 17.20.050; Ord. No. 57831, § 1(part), 1979.)

17.20.060 Pedestrians to use right half of crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks. (1960 C., § 829.060; 1994 C., § 17.20.060; Ord. No. 57831, § 1(part), 1979.)

17.20.070 Pedestrians on streets.

A. Where a sidewalk is provided and its use is practicable, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

B. Where a sidewalk is not available, any pedestrian walking along and upon a highway shall walk only on a shoulder, as far as practicable from the edge of the roadway.

C. Where neither a sidewalk nor a shoulder is available, any pedestrian walking along and upon a street shall walk as near as practical to an outside edge of the roadway, and, if on a two-way roadway, shall walk only on the left side of the roadway.

D. Except as otherwise provided in this chapter, any pedestrian walking along and upon a roadway shall yield the right-of-way to all vehicles upon the roadway.

E. It shall be unlawful for any pedestrian to enter upon or stand within twenty-five (25) feet of any portion of a controlled access highway, including the entrance or exit ramp, except in case of an emergency or when the pedestrian is traveling in a crosswalk located at the intersection of a street with an exit or entrance ramp and in accordance with traffic laws when vehicles are not within the crosswalk. The burden of proof of such emergency shall rest upon such pedestrian. (1960 C., § 829.070; 1994 C., § 17.20.070; Ord. No. 69263, § 2, 11-2-2012; Ord. No. 57831, § 1(part), 1979.)

17.20.080 Soliciting rides or business.

A. No person shall stand in a street for the purpose of soliciting a ride.

B. No person shall stand on a roadway for the purpose of soliciting employment, business, or contributions from the occupant of any vehicle.

C. No person shall stand on or in proximity to a street for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street. (1960 C., § 829.080; 1994 C., § 17.20.080; Ord. No. 57831, § 1(part), 1979.)

17.20.090 Right-of-way on sidewalks.

The driver of a vehicle shall yield the right-of-way to any pedestrian on a sidewalk. (1960 C., § 829.090; 1994 C., § 17.20.090; Ord. No. 57831, § 1(part), 1979.)

17.20.100 Pedestrians yield to authorized emergency vehicles.

A. Upon the immediate approach of an authorized emergency vehicle making use of an audible signal meeting the requirements of this Code and visual signals meeting the requirements of this Code, or of a police vehicle, properly and lawfully making use of an audible signal only, every pedestrian shall yield the right-of-way to the authorized emergency vehicle.

B. This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway nor from the duty to exercise due care to avoid colliding with any pedestrian. (1960 C., § 829.100; 1994 C., § 17.20.100; Ord. No. 57831, § 1(part), 1979.)

17.20.110 Blind pedestrian right-of-way.

No pedestrian, except one totally or partially blind, shall carry a cane or walking stick which is white in color on any public street; the driver of a vehicle shall yield the right-of-way to any blind pedestrian carrying a clearly visible white cane or accompanied by a guide dog. (1960 C., § 829.110; 1994 C., § 17.20.110; Ord. No. 57831, § 1(part), 1979.)

17.20.120 Roller skates, coaster and similar devices restricted.

No person shall ride upon any public roadway by means of roller skates, sled, coaster, toy vehicle or similar device. (1960 C., § 829.120; 1994 C., § 17.20.120; Ord. No. 57831, § 1(part), 1979.)

17.20.125 Roller skates, in-line skates and skateboards prohibited in certain area.

A. The use of roller skates, in-line skates, skateboards or similar devices shall be prohibited, by any person, upon any public street, alley, sidewalk, park, plaza, mall or other public area bounding the streets and alleys within the area bounded by Jefferson Avenue on the west, Washington Avenue on the north, Leonor K. Sullivan Boulevard on the east, and Interstate 64 on the south.

B. Subsection A of this section shall not apply to the following individuals:

1. A participant in a parade or other public event for which a permit has been issued by the City Street Department or the Board of Public Service for said parade or other public event to be conducted within the aforementioned geographical area;

2. An individual who uses roller skates, in-line skates, skateboards or similar devices in conducting his or her business or employment, or commuting to a specific destination;

3. An individual who uses roller skates, in-line skates, skateboards or similar devices on a designated bicycle path.

C. Any person found guilty of violating the provisions of this section shall be fined not less than fifty dollars ($50.00) for the first violation and not less than one hundred dollars ($100.00), nor more than five hundred dollars ($500.00), for any subsequent violation occurring within one year of the date of the guilty plea or finding of guilt for the first violation. In lieu of a fine, the Court may require the completion of not less than fifteen (15) hours of community service. (1994 C., § 17.20.125; Ord. No. 63839, §§ 1—3, 1996.)

17.20.130 Under influence of alcohol or drugs.

A pedestrian who is under the influence of alcohol or any drug to a degree which renders himself a hazard shall not walk or be upon a roadway. (1960 C., § 829.130; 1994 C., § 17.20.130; Ord. No. 57831, § 1(part), 1979.)

17.20.140 Penalty clause.

Pedestrian violators of this chapter shall be issued a violation notice containing instructions permitting the said pedestrian to either appear in person or to mail a fine as duly established by the municipal courts within 7 days to the Traffic Violation Bureau, or obtain a summons for the Traffic Violation Bureau. (1960 C., § 829.140; 1994 C., § 17.20.140; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.22

LOADING ZONES AND ENTRANCE CLEARANCES

Sections:

17.22.010 Loading zone permits—Required—Term and fees.
17.22.020 Loading zone permits—Application.
17.22.030 Loading zone permits—Issuance.
17.22.040 Appropriate signs.
17.22.050 No signs without permit.
17.22.060 Public use as traffic improvement.
17.22.070 Entrance clearance.
17.22.080 Driveway clearance.
17.22.090 Exceptions.

17.22.010 Loading zone permits—Required—Term and fees.

The Traffic and Transportation Administrator is hereby authorized to determine the location of commercial loading zones pursuant to Section 17.22.030 and issue annual permits for said commercial loading zones for commercial vehicles upon application for a permit for such a zone. An annual fee of two dollars per foot of curb line requested by the applicant for such loading zone shall be collected by the Traffic and Transportation Administrator prior to the issuance of said permit. Every such permit shall expire on the 31 day of December of the year for which the permit was issued and for the following year application for issuance of an annual permit shall be submitted on or before the said 31 day of December. In the event that on or before January 1 of any year a permit has not been issued for any commercial loading zone in existence now or then, such zone shall cease to be a commercial loading zone and the Traffic and Transportation Administrator shall remove the signs designating such zone as a commercial loading zone. Provided, however, that in the event the Traffic and Transportation Administrator has not caused the signs to be removed then upon payment of a ten-dollar fee for reinstatement of the zone as a commercial loading zone and upon payment of the annual permit fee the Traffic and Transportation Administrator may reinstate the zone as a commercial loading zone. Provided, however, that in the event the Traffic and Transportation Administrator has caused the signs to be removed, then the initial installation and inspection provisions of Section 17.22.030 shall apply. (1960 C., § 830.010(A); 1994 C., § 17.22.010; Ord. No. 57831, § 1(part), 1979.)

17.22.020 Loading zone permits—Application.

Applications made for a commercial loading zone not heretofore designated as such or a zone from which the signs were removed for any lawful cause shall be made to the Traffic and Transportation Administrator who may issue a permit for a commercial loading zone upon payment of an inspection and initial installation fee of fifty dollars and payment of the annual permit fee for the year in which the permit is granted. (1960 C., § 830.010(B); 1994 C., § 17.22.020; Ord. No. 57831, § 1(part), 1979.)

17.22.030 Loading zone permits—Issuance.

Upon receipt of the application and fee pursuant to Sections 17.22.010 and 17.22.020 the Traffic and Transportation Administrator shall conduct a survey of traffic conditions in the area in which the zone is to be located. The Traffic and Transportation Administrator shall conduct a study of the character of the neighborhood and a study of the applicant's business needs in respect to the loading and un-loading of freight merchandise, materials or property on the public streets or alleys. Upon the Traffic and Transportation Administrator's findings, the commercial loading zone will not unreasonably impede the flow of traffic and such zone is reasonably necessary for the conduct of the applicant's business, then the Traffic and Transportation Administrator shall issue an annual permit for a commercial zone. (1960 C., § 830.010(C); 1994 C., § 17.22.030; Ord. No. 57831, § 1(part), 1979.)

17.22.040 Appropriate signs.

Upon issuance of any commercial loading zone permit the Traffic and Transportation Administrator may place or maintain appropriate signs to indicate the limits of each zone and the hours which they shall apply. The Traffic and Transportation Administrator may also make such rules and regulations concerning the use of the signs and may remove the signs for cause. (1960 C., § 830.010(D); 1994 C., § 17.22.040; Ord. No. 57831, § 1(part), 1979.)

17.22.050 No signs without permit.

No person shall install, commence to install or cause to be installed any commercial loading zone signs or part thereof without first obtaining a commercial loading zone permit under Sections 17.22.010 and 17.22.020 for such zone from the Traffic and Transportation Administrator. (1960 C., § 830.010(E); 1994 C., § 17.22.050; Ord. No. 57831, § 1(part), 1979.)

17.22.060 Public use as traffic improvement.

When the Traffic and Transportation Administrator determines that a loading zone may be used for traffic improvement, said loading zone may be established for public use on a no-charge basis. (1960 C., § 830.010(F); 1994 C., § 17.22.060; Ord. No. 57831, § 1(part), 1979.)

17.22.070 Entrance clearance.

The Traffic and Transportation Administrator is hereby authorized to install and maintain entrance and exit clearance signs for any public building or place of public assemblage where such restriction is deemed necessary for public safety and convenience. Upon payment of an inspection and initial installation fee of

$200.00 per set of two signs a permit therefor shall be issued. (1960 C., § 830.020; 1994 C., § 17.22.070; Ord. No. 57831, § 1(part), 1979.)

17.22.080 Driveway clearance.

The Traffic and Transportation Administrator is hereby authorized to install and maintain driveway clearance signs where such restriction is deemed necessary for public safety and convenience. Upon payment of an inspection and initial fee of $200.00 per set of two signs, a permit shall be issued. (1960 C., § 830.030; 1994 C., § 17.22.080; Ord. No. 57831, § 1(part), 1979.)

17.22.090 Exceptions.

Fees set in Sections 17.22.070 or 17.22.080 shall not apply to not-for-profit organizations. (1960 C., § 830.040; 1994 C., § 17.22.090; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.23

COMMERCIAL VEHICLE LOADING

Sections:

17.23.010 Prohibited hours.
17.23.020 Applicability of provisions.
17.23.030 Penalty for violation.

17.23.010 Prohibited hours.

Commercial vehicles are prohibited from loading or unloading goods and merchandise to commercial/retail establishments that abut or are located next to a residentially zoned property between the hours of ten p.m. and six a.m. (1994 C., § 17.23.010; Ord. No. 62184, § 1, 1990.)

17.23.020 Applicability of provisions.

The provisions of Section 17.23.010 extend to and are intended to apply to any premises of a commercial nature that are located in a commercially zoned mall, shopping center, or other commercial enterprise zones that house more than one retail establishment; to the extent any retail commercial premises abuts or is located next in proximity to a residentially zoned premises, all said retail commercial enterprises found within any mall, shopping center, or other multi-faceted commercial retail establishment shall be considered as within the terms, provisions and contemplated scope of this chapter. (1994 C., § 17.23.020; Ord. No. 62184, § 2, 1990.)

17.23.030 Penalty for violation.

Performance of any act prohibited by this chapter and failure to perform any act required by this chapter, shall be punishable by a sentence of not more than ninety (90) days in jail, or by a fine of not more than five hundred dollars ($500.00) or both or by any combination of sentence and fine up to and including the maximum sentence and maximum fine. (1994 C., § 17.23.030; Ord. No. 62184, § 3, 1990.)

Chapter 17.24

PARKING

Sections:

17.24.010 Parking regulations.
17.24.020 Schedule of restricted streets.
17.24.030 Parking for certain purposes—Prohibited—Limited.
17.24.040 Stopped vehicles.
17.24.050 Vehicle equipment.
17.24.060 Unauthorized moving of vehicles.
17.24.070 Prohibited parking.
17.24.080 Homemade trailers.

17.24.010 Parking regulations.

A. Except as otherwise provided, every vehicle stopped or parked upon a two-way roadway shall be so stopped or parked with the right-hand wheels parallel to and within twelve (12) inches of the right-hand curb or as close as practical to the right edge of the right-hand shoulder.

B. Every vehicle shall be stopped or parked parallel to the curb or edge of the roadway, in the direction of authorized traffic movement, with its right-hand wheels within twelve (12) inches of the right-hand curb or as close as practical to the right edge of the right-hand shoulder, or with its left-hand wheels within twelve (12) inches of the left-hand curb or as close as practical to the left edge of the left-hand shoulder.

C. When angle parking signs are erected, drivers of vehicles shall park as directed by said signs with the designated vehicle's wheel within six (6) inches of the curb in lawful parking areas on the streets or parts thereof lawfully described. (1960 C., § 831.010(1); 1994 C., § 17.24.010; Ord. No. 57831, § 1(part), 1979.)

17.24.020 Schedule of restricted streets.

No driver of any vehicle shall park such vehicle at any time on a street designated in the schedules thereof

on file in the offices of the Register and the Traffic and Transportation Administrator, which schedules are available for examination. Signs shall have been erected and maintained in each location designating the limits of the parking restrictions. (1960 C., § 831.010(2); 1994 C., § 17.24.020; Ord. No. 57831, § 1(part), 1979.)

17.24.030 Parking for certain purposes—Prohibited—Limited.

A. *Enumerated.* No person shall park a vehicle upon any street when:

1. Displaying such vehicle for sale;

2. Greasing or repairing such vehicle, except when necessitated by an emergency;

3. Displaying merchandise for sale or for advertising purposes, except as provided herein.

B. *Vehicle Stands and Selling from Parked Vehicle.* It shall be unlawful for any person to park or keep a vehicle longer than sixty (60) minutes on one block for the purpose of selling merchandise contained in such vehicle, except at duly designated locations. (1960 C., § 831.010(3); 1994 C., § 17.24.030; Ord. No. 57831, § 1(part), 1979.)

17.24.040 Stopped vehicles.

Whenever a vehicle is stopped for the purpose of making a sale, it shall be stopped at the right-hand curb of the street at the extreme right-hand edge of the pavement and shall be legally parked. No sale shall be made from any such vehicle from other than the curb side, except to any person who is not standing in the normally traveled portion of a City street or alley. At such stops the vehicle's motor shall be turned off unless its operation is essential to producing the product sold. (1960 C., § 831.010(4); 1994 C., § 17.24.040; Ord. No. 57831, § 1(part), 1979.)

17.24.050 Vehicle equipment.

Each vending vehicle subject to the provisions of this chapter shall be equipped with:

A. A signaling device approved by the Traffic and Transportation Administrator which, while the vehicle is stopped to make sales, will display flashing signals plainly visible from the front and rear, during the day or night, indicating that sales therefrom are being made.

B. A receptacle for the disposal of wrappers, papers, containers and other trash. (1960 C., § 831.010(5); 1994 C., § 17.24.050; Ord. No. 57831, § 1(part), 1979.)

17.24.060 Unauthorized moving of vehicles.

No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such a distance as is unlawful. (1960 C., § 831.010(6); 1994 C., § 17.24.060; Ord. No. 57831, § 1(part), 1979.)

17.24.070 Prohibited parking.

Except when necessary to avoid conflict with other traffic, or in compliance with law or the direction of a police officer or official traffic-control device, no person shall park a vehicle:

A. On the roadway side of any vehicle stopped or parked at the edge or curb of a street;

B. On a sidewalk;

C. Within an intersection;

D. On a crosswalk;

E. Alongside or opposite any street excavation or obstruction when parking would obstruct traffic;

F. Upon any bridge or other elevated structure, or within a highway tunnel, unless designated;

G. On any railroad tracks or within fifty (50) feet of the nearest rail of a railroad crossing;

H. On any controlled-access highway at any time except upon any highway shoulder, for emergency repairs, but in no case longer than forty-eight (48) hours;

I. In the area between roadways of a divided highway, including crossovers;

J. Within ten (10) feet of any United States mailbox;

K. In a bus zone, except while actually engaged in unloading passengers or picking up waiting passengers;

L. In a loading zone for a period of time longer than is required for expeditious loading and unloading of passengers or for the loading or unloading and delivering of materials or the delivery of materials, packages, parcels or letters, from a commercial vehicle;

M. In a taxicab zone, except that the attending driver of a duly licensed taxicab may so park, except while actually engaged in loading and unloading passengers or picking up waiting passengers;

N. Where the curb or edge of roadway is marked with yellow paint;

O. On the left or median side of any divided roadway except where posted;

P. In any alley except while loading and unloading materials not to exceed fifteen (15) minutes, provided ten (10) feet of the width of the roadway is available for

the free movement of vehicular traffic and providing the vehicle is not blocking the driveway entrance to any abutting property;

Q. At any place where official signs prohibit parking, except for a period of time not longer than is necessary for delivery or pickup of passengers or materials and in no case longer than fifteen (15) minutes or where parking is prohibited during the hours of seven a.m. to nine a.m. or four p.m. to six p.m.;

R. On any street or alley without the current state license plate or plates required by state statutes;

S. In a posted fire lane;

T. On any unimproved parcel of land;

U. In front of a public or private driveway or within five (5) feet of the rounding of a driveway, alley or private street;

V. Within fifteen (15) feet of a fire hydrant;

W. Within thirty (30) feet of an electric traffic control device and within twenty (20) feet of a crosswalk, stop sign, yield sign, traffic control device or any other location determined by the Traffic and Transportation Administrator based on engineering standards as necessary for intersection visibility;

X. Within twenty (20) feet of the driveway entrance to any fire station;

Y. In any so designated parking space for the handicapped, including all parking lots open to the general public, unless so licensed by the State of Missouri;

Z. Continuously upon any street, alley, roadway or driveway where parking is permitted, including streets, alleys, roadways or driveways owned by the St. Louis Housing Authority, for longer than five (5) days. (1960 C., § 831.020; 1994 C., § 17.24.070; Ord. No. 66921, § 2, 2005; Ord. No. 66183, §§ 1, 2, 2004; Ord. No. 61186, § 2, 1989; Ord. No. 60207, § 1, 1987; Ord. No. 57831, § 1(part), 1979.)

17.24.080 Homemade trailers.

A. No trailers or home-made trailers shall be stored or parked, coupled or uncoupled, upon any public street or alley where the abutting land is in the "A," "B," "C," "D," "E" or "F" use zoning districts as established by ordinance. Any such trailer so parked is declared to be an unlawful obstruction of the street or alley. This provision shall not apply to trailers which are parked in an "F" use zoning district and are within fifty (50) feet of the commercial business which owns or leases such trailer or to materials and equipment trailers which are rendering a service unless such trailer is interfering with the flow or movement of traffic.

B. Further, no uncoupled trailer or home-made trailer shall be stored or parked upon any public street or alley in all zoning districts as established by ordinance. (1994 C., § 17.24.080; Ord. No. 64881, § 3, 2000; Ord. No. 64705, §§ 2, 3, 1999.)

Chapter 17.25

VALET PARKING ZONES

Sections:

17.25.010	**Establishment of valet parking zones.**
17.25.020	**Permit to operate a valet parking service.**
17.25.030	**Valet permit.**
17.25.040	**Establishment of special valet zones and selection of operators.**
17.25.050	**Penalties.**

17.25.010 Establishment of valet parking zones.

A. Pursuant to the provisions of this section, valet parking zones shall be established on such public streets and in such places and in such number as shall be determined by the Director to be in the best interest of the City, its citizens and visitors.

B. A valet parking zone shall be created only upon the written request submitted to the Director by the owner or occupant of the property adjacent to the site of the proposed valet parking zone and the subsequent approval by the Director of a permit therefor setting forth the terms of the operation of the valet parking zone, which terms shall include, but may not be limited to, those set forth in this section. Each such request must be accompanied by a nonrefundable initial permit application fee not to exceed three hundred dollars ($300.00). Each such permit shall obligate the holder thereof (the "permittee") to operate the valet parking zone and perform all of the obligations, duties and responsibilities set forth in the permit and in this section. All such permits shall be subject to renewal by the Director as of April 1 of every calendar year. All such permits renewed shall also be subject to an annual fee not to exceed two hundred dollars ($200.00) payable by the renewal date. In determining whether to renew a permit, the Director shall consider the manner in which the valet parking zone has been operated, the degree to

which the applicant has complied with the requirements set forth in this section and the permit and the best interests of the City and its citizens and visitors. In establishing the initial permit application fee and the renewal fee the Director shall annually take into account the cost of administration, investigation, enforcement, recordkeeping, and all associated overhead of the valet parking program.

C. Valet parking zones shall be established only on public streets and adjacent sidewalks as specified in the permit to be issued pursuant to Subsection B above. The Director shall determine the location and length of all valet parking zones based on factors including, but not limited to, traffic flow, pedestrian safety, the number of zones already in the area where the zone is requested, the hours of operation requested, and the impact on the overall streetscape.

D. The Director shall provide appropriate signage, at the cost of the applicant, prohibiting parking in valet parking zones between times designated by the Director and designating such zones "No Parking, Valet Only, Tow Away Zone."

E. The permittee shall remove all vehicles to be parked by valets from the valet parking zone and from any other portion of a public right-of-way as quickly as possible and in any case within ten (10) minutes. Vehicles so removed shall not be parked in public streets or alleys.

F. The permittee, at its own expense and cost, shall keep the valet parking zone in a neat and clean condition, free from nuisance and filth and provide for the removal of snow, ice, trash and waste therefrom.

G. The permittee shall operate the valet parking zone, or cause the same to be operated, in accordance with all requirements of this section. In the event that the permittee retains the services of a valet parking company, the permittee shall ascertain that the company has a valid permit to operate a valet parking service and shall provide written notice of the name of the company as directed by the Director.

H. The City reserves the right to add, modify or eliminate street locations and times at any time in order to protect pedestrian traffic and improve conditions for the flow of motor vehicular traffic. The valet parking zone permit may be suspended if the sidewalk or street area is needed for parades, festivals or other such special events. Except for temporary suspensions for special events as set out above, the permittee is entitled to prompt notice of the City's intent to suspend or revoke and is entitled to a hearing before the Director. The permittee may appeal the decision of the Director to the City Board of Public Service.

I. The Director, at his discretion, may issue a daily non-recurring valet parking zone permit; provided, however, that the permit holder would be required to utilize a valet parking service permit holder in the performance of the valet operations. The fee for the daily non-recurring parking zone permit shall be twenty dollars ($20.00) per day. (1994 C., § 17.25.010; Ord. No. 69139, § 1, 3-28-2012.)

17.25.020 Permit to operate a valet parking service.

No person shall engage in any business of operating valet parking service in the City without first obtaining a permit pursuant to this section. The operator shall also be required to possess a valid business license from the City.

A. *Application.* Any person desiring to operate a valet parking business shall make an application for the permit to the Director and pay a filing fee in an amount determined from time to time by the Director. The filing fee shall be based on the determination of the Director of the costs associated with the administration of the program to permit valet parking services, including, but not limited to, review, investigation, adjudication and all associated overhead. In no event shall the cost of such permit exceed three hundred dollars ($300.00). The application shall contain the following information and such additional information as may be determined by the Director:

1. The name, age, business address and residence of the applicant if a natural person; if a corporation, its name, address of its principal office, and the names of its principal officers together with their respective addresses; if a partnership, association, or other unincorporated entity, the names of the partners, or the names of those comprising the association or company with the address of each.

2. The experience of the applicant in the provision of such services and whether any similar permit in any jurisdiction has ever been revoked, and if so, the circumstances of such revocation.

3. The uniform and insignia to be used to designate the applicant's employees.

4. Whether the applicant or any of its principal officers or employees has ever been convicted of a felony or a violation of any narcotic law, or a crime

involving moral turpitude. The Director or his designee may require a criminal record check at their discretion.

B. *Insurance.* The Director, after consultation with the City Counselor, shall determine the types and coverage limits of insurance that shall be required of all valet parking service operators. No permit shall be issued or continued in operation, and no person shall operate a valet parking service unless and until such owner shall file with the Director a written certificate of insurance showing that the policy or policies as required by the Director are in full force and effect and that they cannot be cancelled without thirty (30) days' written notice to the Director. The policies shall be issued by insurance companies qualified to do business in the State of Missouri, and shall name the City of St. Louis, Missouri, as an additional insured.

C. *Issuance.* Upon receipt of the completed application, fee, and satisfactory proof of insurance, the Director shall conduct any investigation deemed appropriate to determine whether a permit should issue. The determination of the Director shall be final.

D. *Regulations for All Permit Holders.* All valet parking service permits holders shall at all times:

1. Only relocate vehicles to the location specified in the valet parking zone permit.

2. Only utilize the number of parking spaces specified for drop off and pick up in the valet parking zone permit.

3. Not allow any vehicle to be parked for more than ten (10) minutes in a parking spaces designated for drop off and pick up in the valet parking zone permit (no "VIP" parking).

4. Not allow any "double parking" in the parking spaces designated for drop off and pick up.

5. Not place any cones, traffic control devices or temporary structures of any type in the public right-of-way at any time.

6. Only operate on days and times specified in the valet parking zone permit.

E. *Suspension and Revocation.* Any permit issued hereunder may be suspended or revoked for any reason that would justify a refusal to issue the permit originally or by reason of any failure by the permittee to comply with the provisions of this Code, or any condition imposed by the Director or his designee upon issuance of the permit. Prior to any suspension or revocation a permittee is entitled to notice of the City's intent to suspend or revoke which shall include an enumeration of the causes, and is entitled to a hearing before the Director. The permittee may appeal the decision of the Director to the City Board of Public Service. (1994 C., § 17.25.020; Ord. No. 69139, § 2, 3-28-2012.)

17.25.030 Valet permit.

No person shall work as a valet in the City without first obtaining a valet permit from the City authorizing the holder to work as a valet in the City. Upon application by a valet parking service permit holder the Director may issue a re-occurring temporary valet permit.

A. Application for a valet permit shall be made to the Director. The applicant for the permit shall comply with the following requirements:

1. Be at least eighteen (18) years of age.

2. Be able to speak and understand directions, oral and written, in the English language.

3. Be in possession of a valid driver's license as prescribed by the laws of the state of his/her residency and immediately report any administrative action or change in status of this license to the Director or his designee.

4. Be in possession of current criminal background checks performed by the county police department, the City Police Department or such other entity as the Director may direct, showing the applicant has not been convicted of a felony and has no drug- or alcohol-related convictions involving the operation of a motor vehicle.

5. Provide with the application an intent to hire or engage letter from the holder of a valet parking service permit.

6. Provide with the application a current (no older than 10 days) Missouri Department of Revenue Driver Record Report or if an Illinois resident, an abstract of driving record from the Illinois Secretary of State.

7. Furnish the full name and residential address of the applicant (post office box addresses will not meet this requirement), telephone land line and cell phone numbers as well as email addresses if available.

8. Furnish certification that the applicant will comply with all current and future rules and regulations promulgated by the Director.

9. Acknowledge by signature at the time of original permitting and at any renewal the receipt of a copy of the current Director's rules for valets which shall include an acknowledgement that by accepting the va-

let permit the valet assumes the responsibility of becoming familiar with and adhering to each applicable section of the Director's rules for valets.

B. The Director will deny (or revoke if appropriate) an application for a valet permit if the Director determines that:

1. The applicant has made any material intentional misstatement or misleading statement, or omission of fact in the application.

2. The applicant has been convicted of or pled guilty to any one of the following:

a. Felony violation of any state statute or law involving any crime against persons, including, but not limited to, all forms of assaults within ten (10) years of the application or within ten (10) years of release from prison for said felony conviction.

b. Felony violation of any state statute or law within ten (10) years of the application or within ten (10) years of release from prison for said felony conviction.

c. Driving while his or her Missouri's driver's license was suspended or revoked within five (5) years of the date of the application.

d. Driving while intoxicated or some other drug- or alcohol-related traffic offense within five (5) years of the application.

e. Criminal or driving activity which the Director determines may pose a risk of danger to the traveling public.

3. The applicant has violated any provision of this Code, including non-payment of administrative penalties.

4. If the Director determines that charges in the nature of the above-listed violations are pending against the applicant, the Director may hold the application until the charges have been resolved to the Director's satisfaction.

C. Upon approval of the application for valet permit and payment of the appropriate fee, the Director shall issue a valet permit to the applicant. The driver shall display the valet permit as instructed by the Director during all times that he is working.

D. The fee for a valet permit shall be determined annually by the Director and published by the Director. The fee shall not exceed one hundred dollars ($100.00) per year and will be established taking into account the cost of administration, investigation, enforcement, recordkeeping, and all associated overhead of the valet parking program. The valet permit shall be valid for one (1) year from date of issuance.

E. The fee for any replacement license shall be determined annually by the Director and published by the Director.

F. A fee of fifty dollars ($50.00) per permit will be assessed for failure to renew a valet permit by the prescribed date. Permits may be renewed up to sixty (60) days in advance of expiration. Permits allowed to expire will require the permittee to begin the process as though applying for the first time, including all tests, documentation and fees.

G. If the Director denies a permit to an applicant or places the application on hold because of pending charges, the decision shall be in writing stating the reason for said action and the procedure for appeal pursuant to this chapter and sent by certified or registered mail to the applicant.

H. Altering or forging a valet permit is prohibited and shall result in revocation of such permit. (1994 C., § 17.25.030; Ord. No. 69139, § 3, 3-28-2012.)

17.25.040 Establishment of special valet zones and selection of operators.

In certain areas of the City, the Director of Streets may determine that due to a multiplicity of businesses, limited street frontage, high volumes of traffic, and a lack of readily available public parking to provide for the public safety and general welfare of its citizens, it is in the best interests of the City, to prohibit the establishment of multiple valet parking zones operated by multiple valet parking service operators selected by the parking zone permit holders. In such areas the Director may establish a special valet zone within which the City of St. Louis will select an exclusive valet parking service to operate. When the Director of Streets has made this determination that a special valet zone is necessary, the Director will publish in the City Journal and in one newspaper of general circulation within the City that the City will be accepting proposals from valet parking services to operate in the special valet zone in accordance with rules and regulations established by the Director. The proposal and its review will be in accordance with Chapter 3.97, as amended, regarding selection of professional services for the City. The City of St. Louis may enter into a one-year agreement with the selected valet parking service under such terms and conditions as determined by the Director of Streets in

conjunction with the City Counselor. This agreement may be extended not more than two one-year terms. (1994 C., § 17.25.040; Ord. No. 69139, § 4, 3-28-2012.)

17.25.050 Penalties.

Any person who violates or fails to comply with or who permits or causes any person in his/her/its employ to violate or fail to comply with any of the provisions of this chapter shall be subject to a fine of not more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or both such fine and imprisonment. Each day that such violation continues shall constitute a separate violation of the provisions of this chapter. (1994 C., § 17.25.050; Ord. No. 69139, § 5, 3-28-2012.)

Chapter 17.26

ELECTION DAY PARKING

Sections:

17.26.010 Parking permitted—Limitations.

17.26.020 Duties of Traffic and Transportation Administrator.

17.26.030 Unlawful to park vehicle.

17.26.040 Penalty.

17.26.010 Parking permitted—Limitations.

There is hereby established one hundred (100) feet of motor vehicle parking space along the curb line adjacent to all precinct polling places established by the Board of Election Commissioners between the hours of 5:30 a.m. and 7:30 p.m. on every general, primary or special election day for the use of registered and qualified voters voting at such precinct, while exercising their voting privilege. (1960 C., § 832.010; 1994 C., § 17.26.010; Ord. No. 57831, § 1(part), 1979.)

17.26.020 Duties of Traffic and Transportation Administrator.

The Traffic and Transportation Administrator of the City is hereby authorized and directed to post appropriate signs prohibiting the parking of motor vehicles within such areas designated in Section 17.26.010 of this chapter on every general, primary or special election day. Should such motor vehicle parking area so designated in Section 17.26.010 of this chapter be located in parking meter areas, or in an area limiting, restricting or prohibiting parking, then in such event, the provision of this chapter shall have precedence over any such ordinance, regulation or prohibition between the hours of 5:30 a.m. and 7:30 p.m. on every general, primary or special election day, except where parking in such area is prohibited because of the existence of a fire hydrant, fire lane or mail box in such area and in such cases all such prior existing prohibitions shall remain in full force and effect, the provisions of this chapter notwithstanding. (1960 C., § 832.020; 1994 C., § 17.26.020; Ord. No. 57831, § 1(part), 1979.)

17.26.030 Unlawful to park vehicle.

No person, firm or corporation shall park a vehicle in the motor vehicle parking space area set forth in Section 17.26.010 of this chapter unless such person is exercising their voting privilege at such time. (1960 C., § 832.030; 1994 C., § 17.26.030; Ord. No. 57831, § 1(part), 1979.)

17.26.040 Penalty.

Any person, firm or corporation who shall violate the provisions of this chapter shall upon the conviction thereof be fined ten dollars ($10.00) for each such offense. (1960 C., § 832.040; 1994 C., § 17.26.040; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.28

STREET CLEANING

Sections:

17.28.010 Parking prohibited during certain hours.

17.28.020 Installation of signs.

17.28.030 Length of prohibition.

17.28.040 Maximum area of prohibition.

17.28.050 Exceptions.

17.28.060 Area prohibited between 3:00 a.m. and 7:00 a.m.

17.28.070 Area prohibited between 2:00 a.m. and 7:00 am.

17.28.010 Parking prohibited during certain hours.

The parking of vehicles in the curb lane on public streets within the City is hereby prohibited, for the purpose of street cleaning, as set forth in this chapter. (1960 C., § 833.010(part); 1994 C., § 17.28.010; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.020 Installation of signs.

The Traffic and Transportation Administrator shall install signs designating the day and time of such pro-

hibition. The parking prohibition provided for herein shall come into full force and effect on each street when said signs are installed. (1960 C., § 833.010(1); 1994 C., § 17.28.020; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.030 Length of prohibition.

Said prohibition shall be in effect weekdays only, for a period of four hours or less, as posted, between the hours of 8:00 a.m. and 4:00 p.m. (1960 C., § 833.010(2); 1994 C., § 17.28.030; Ord. No. 60769, § 1, 1988; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.040 Maximum area of prohibition.

No more than one curb lane per block shall be prohibited to parking for this purpose on more than one day each week, and no portion of a street shall be prohibited to parking on different days in consecutive weeks. (1960 C., § 833.010(3); 1994 C., § 17.28.040; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.050 Exceptions.

The Director of Streets, when he shall find that any street which lies in whole or part within one of the areas designated presents a special condition or traffic situation, may exclude such street or part thereof from the operation of this chapter; provided, however, this section shall not be construed to permit the Director of Streets to establish any parking prohibition or restriction on such street. The Director of Streets shall cause each street which has parking prohibited signs, as provided for herein above, to be cleaned on the day parking is prohibited on such streets unless such cleaning cannot be accomplished for reasons beyond said Director's control. The Director of Streets and the Chief of Police shall hereby be authorized and directed to establish the administrative procedure for directing that no enforcement of this section shall occur in areas when there will be no street sweeping. (1960 C., § 833.010(4); 1994 C., § 17.28.050; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.060 Area prohibited between 3:00 a.m. and 7:00 a.m.

Parking is hereby prohibited in an area bounded by the Mississippi River on the east, Market Street on the south, Tucker Boulevard on the west, and Cole Street on the north including both sides of boundary streets between the hours of 3:00 a.m. and 7:00 a.m. (1960 C., § 833.010(5); 1994 C., § 17.28.060; Ord. No. 58485, § 2(part), 1982; Ord. No. 57831, § 1(part), 1979.)

17.28.070 Area prohibited between 2:00 a.m. and 7:00 am.

Parking is hereby prohibited in an area bounded by Tucker Boulevard on the east, but not including either side of Tucker Boulevard, Market Street on the south, 17th Street on the west, Cole Street on the north including both sides of the boundary streets except Tucker Boulevard between the hours of 2:00 a.m. and 7:00 a.m. (1960 C., § 833.010(6); 1994 C., § 17.28.070; Ord. No. 58485, § 2(part), 1982.)

Chapter 17.30

TRUCKS

Sections:

17.30.010 Truck traffic prohibited—Exceptions.
17.30.020 Parking.
17.30.021 Prohibited in certain area.
17.30.022 Trucks in excess of 26,000 pounds.
17.30.025 Parking—Noncommercial pickup truck.
17.30.030 Size and weight limits.
17.30.040 Special permits.
17.30.045 Oversize load signs to be removed when.
17.30.050 Projecting treads on metal tired vehicles.
17.30.060 Lift gates in retracted position.
17.30.070 Transportation of hazardous materials.

17.30.010 Truck traffic prohibited—Exceptions.

A. All truck traffic, except as herein provided, is prohibited while loading, unloading or servicing on those streets and alleys set forth in the schedule thereof on file in the office of the Register and the Traffic and Transportation Administrator, which schedule is available for examination. Signs shall be erected designating the provisions of this chapter.

B. The prohibition contained herein shall not apply to the noncommercial pickup trucks as defined in Section 17.30.025.

C. This section shall not be construed as a prohibition against any truck which is traveling directly to a

destination for loading, unloading or servicing, if there is no alternative route to said destination on streets and alleys where truck traffic is not prohibited. (1960 C., § 834.010; 1994 C., § 17.30.010; Ord. No. 62926, § 1, 1993; Ord. No. 57831, § 1(part), 1979.)

Editor's Note:

The following amendment to Section 17.30.010 was proposed as a nonbinding expression of preferential voting by Ordinance 59973, approved July 30, 1986:

Section 820.140, 820.420 and Section 820.530 of Ordinance 57831 enacted April 19, 1979, is hereby amended to read as follows:

Section 820.010: Truck Traffic Prohibited—Any truck over ¾-ton used for commercial purposes is prohibited except while loading, unloading, or servicing, on those streets and alleys set forth in schedule of thereof on file in the Office of the Register and the Traffic and Transportation Administrator, which schedule is available for examination. Signs shall be erected designating the provisions of this section.

Nothing herein shall prohibit the parking of vehicles defined by Sections 820.140, 820.420 and 820.530 provided the vehicles described by the said stated Sections do not exceed in weight three-quarter (¾) tons and meet the following conditions:

A) The bed of the vehicle shall be clear of all trash, debris, or material.

B) If there is any material in the bed of the truck, then there shall be a cover over said bed, form fit, which shall cover the material stored therein.

C) The cover called for above may be a camper shell or a canvass cover; and if a canvass cover it shall not be higher than the bottom of the rear window of the cab of said vehicle.

Ordinance 60027 was a correction to Board Bill 71 (approved July 30, 1986 as Ordinance 59973). The corrected nonbinding preferential proposal was to read as follows:

Should the Board of Aldermen adopt an Ordinance to permit a pick-up truck used non-commercially to park on a residential street, provided that the bed of said truck is:

A) clear of trash, debris or material; or

B) is otherwise covered; and

C) the vehicle has no advertisement displayed thereon.

Ordinance 60027 was not submitted to voters.

17.30.020 Parking.

A. No truck or bus shall be parked upon any public street where the abutting land is in the "A," "B," "C," "D," "E" or "F" use zoning district as established by ordinance; any such vehicle so parked is declared to be a nuisance and an unlawful obstruction of the street. These provisions shall not apply to vehicles used for commercial purposes which are parked in an "F" use zoning district and are within fifty (50) feet of the commercial business which owns or leases such vehicle, or any trailers which is rendering service or loading or unloading merchandise.

B. No tractors, truck-tractors, or trailers, coupled or uncoupled, or construction equipment, shall be placed, stored, or parked upon any public street or alley unless due to special circumstances a permit therefor shall have been issued by the Director of Streets. Any such vehicle so placed, stored, parked or interfering with traffic is declared to be a nuisance and an unlawful obstruction of the street.

These provisions shall not apply to any tractor, truck-tractor, trailer, coupled or uncoupled, or construction equipment, or combination vehicles which are (1) parked at a loading dock or terminal during the time when it is engaged in the loading or unloading of merchandise, (2) rendering service, loading or unloading merchandise, (3) or in the case of construction equipment, rendering service which has a valid permit issued by a City agency and provided that any such vehicles exempted in Subsections (1), (2) and (3) above are not interfering with the flow or movement of traffic. Notwithstanding the provisions of any other ordinance, any person, firm, or corporation convicted of violating this section shall be punished by a fine of not less than one hundred dollars ($100.00) or imprisonment for not more than ninety (90) days in jail or both such fine or imprisonment.

C. Any truck or bus parked on any private street where said abutting land is in the "A," "B," "C," "D," "E," or "F" use zoning district as established by ordinance, is hereby declared to be a nuisance and in unlawful obstruction of the street. (1960 C., § 834.020; 1994 C., § 17.30.020; Ord. No. 64881, §§ 1, 2, 2000; Ord. No. 60152, § 1, 1986; Ord. No. 58681, § 2, 1982; Ord. No. 57831, § 1(part), 1979.)

Editor's Note:

The following amendment to Section 17.30.020 was proposed as a nonbinding expression of preferential voting by Ordinance 59973 approved July 30, 1986:

Section 834.020—Parking—No trucks over ¾-ton used for commercial purposes or uses designated to carry 20 or more persons shall be parked upon any public street when the abutting land is in the "A," "B," "C," "D," or "E" use zoning district as estab-

lished by ordinance: any small truck ¾-ton or less which is used for commercial purposes, parked on said residential street and any vehicle in excess of 23 feet from end to end, or which is used for storage of goods, materials, or equipment other than items considered to be a part of the unit or essential for its immediate use, is declared to be a nuisance and an unlawful obstruction of the street. These provisions shall not apply to any tractor or truck which is rendering service, loading or unloading merchandise.

17.30.021 Prohibited in certain area.

A. No person shall drive, tow, or move any commercial truck, truck-tractor, tractor, or commercial trailer on the public streets in any area bounded by the south curb line of Gravois Street from Interstate Highway 55 to Sidney Street, the south curb line of Sidney Street from Gravois Street to Interstate Highway 55, and the west boundary of Interstate Highway 55 from Sidney Street to Gravois Street between the hours of eight p.m. (8:00 p.m.) and seven a.m. (7:00 a.m.) each day of the week.

B. The provisions of Subsection A of this section shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service to noncommercial vehicles. (1994 C., § 17.30.021; Ord. No. 63976, §§ 1, 2, 1997.)

17.30.022 Trucks in excess of 26,000 pounds.

A. No person shall drive, tow, or move any commercial truck, truck-tractor, tractor, or commercial trailer with a gross vehicle weight (GVW) in excess of 26,000 pounds:

1. On Chippewa Street from the east boundary of South Broadway to the east boundary of Marine Avenue;

2. On Keokuk Street from the east boundary of South Broadway to the east boundary of Marine Avenue;

3. On Osage Street from the east boundary of South Broadway to the east boundary of Marine Avenue;

4. On Marine Avenue from the south boundary of Osage Street to the south boundary of Miami Street;

5. On Kosciusko Street from the north boundary of Cahokia Street to the south boundary of President Street; or

6. On Morganford Road from the north boundary of Arsenal Street to the south boundary of Utah Street.

B. The provisions of Subsection A of this section shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service.

C. Subsection A of this section shall not be construed as a prohibition against any vehicle which is traveling directly to a destination for loading, unloading, or servicing, if there is no alternative route to said destination on streets and alleys where truck traffic is not prohibited. (1994 C., § 17.30.022; Ord. No. 70441, § 1, 2-8-2017; Ord. No. 70275, §§ 1—3, 5-26-2016.)

17.30.025 Parking—Noncommercial pickup truck.

A. Definition. Pickup truck "noncommercial" means a four-wheel motor vehicle, having an enclosed cab and an open body with low sides and tailgate, used or maintained privately for the transportation of property solely for personal use.

B. All such vehicles shall have no advertisement or writing displayed thereon except that which the truck manufacturer, or the dealer who sold the truck, routinely places on trucks; and provided further that the sides of any such vehicles shall have no stakes inserted therein and provided further that no such vehicles shall have been modified to raise the bumpers over twenty-six (26) inches from the street.

C. Notwithstanding Section 17.30.020 pickup trucks which are not used for commercial purposes shall be and are hereby permitted to park on residential streets provided that the bed of said truck is:

1. Clear of trash, debris or other materials, except for factory installed equipment; or

2. The bed of said truck is covered by a factory design cover in good repair. (1994 C., § 17.30.025; Ord. No. 60168, §§ 1—3, 1986.)

17.30.030 Size and weight limits.

A. No motor vehicle, unladen or with load, shall exceed one hundred eight (108) inches in width, fifteen (15) feet in height, forty (40) feet in length, or sixty-five (65) feet in length when in combination of two (2) or more vehicles coupled together (including coupling); except that any vehicle or combination of vehicles transporting automobiles or other vehicles may carry a load which extends no more than three (3) feet beyond the front and four (4) feet beyond the rear of the transporting vehicle or combination of vehicles on streets designated by the Director of Streets.

B. No motor vehicle shall have a greater weight

than 22,400 pounds on one axle. (1960 C., § 834.030; 1994 C., § 17.30.030; Ord. No. 61185, § 1, 1989; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.170 (2016) Width, height and length of vehicles

17.30.040 Special permits.

A. The Director of Streets may, at his discretion, issue special permits for the operation of vehicles, the measurements of weights of which exceed the limits specified in the foregoing sections, but such permits shall be issued for a single trip or for a definite period not to exceed one year duration, and shall designate the streets which may be used under authority of such permit.

B. The Director of Streets may, with the approval of the Alderman of the ward, issue a special permit with a fee of twenty-five dollars ($25.00) for the parking of truck tractors and coupled trailers in a zoned Industrial Area if said area is not contiguous to a residence(s); said permit may be revoked at any time, and such permit shall not exceed one (1) year, and shall designate the location which shall be used under authority of such permit. Nothing herein shall license the parking of such a truck tractor and coupled trailer in violation of any parking ordinance. (1960 C., § 834.040; 1994 C., § 17.30.040; Ord. No. 62530, § 1, 1992; Ord. No. 57831, § 1(part), 1979.)

17.30.045 Oversize load signs to be removed when.

A. 1. Any motor vehicle which is not currently being used to convey or escort an oversized load, a movement for which a permit has been issued by the Director of Streets as provided for in Section 17.30.040, shall not display the words "oversize load," "wide load," or any similar warning signs so as to indicate an oversize load movement, unless the vehicles are so engaged in such movement and have obtained the required permit(s).

2. If permanent signs are installed on vehicles with the above wording thereon, all such signs shall be covered in such a manner that it will not appear to be an oversized load movement unless the vehicle is operating as authorized above.

B. Any person, firm or corporation violating the provisions of this section shall be deemed guilty of Class I general offense. (1994 C., § 17.30.045; Ord. No. 60291, §§ 1, 2, 1987.)

17.30.050 Projecting treads on metal tired vehicles.

No metal-tired vehicle shall be operated over any streets of the City if such vehicle has on the periphery of any road wheels, any lug, flange, cleat, ridge, bolt or any projection of metal or wood which projects radially beyond the tread or traffic surface of the tire, unless the street is protected by putting down solid planks or other suitable material, or by attachments to the wheels so as to prevent such vehicle from damaging the street, except that this prohibition shall not apply to traction engines equipped with what is known as caterpillar treads, when such caterpillar does not contain any projection of any kinds likely to damage the surface of the street; provided, however, that tractors and traction engines and similar vehicles may be operated which have upon their wheels "V" shaped, diagonal or other cleats arranged in such manner as to be continuously in contact with the road surface; provided, that the gross weight on the wheels per inch of width of such cleats or road surface, when measured in the direction of the axle of such vehicle, does not exceed 800 pounds. (1960 C., § 834.050; 1994 C., § 17.30.050; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.250 (2016) Similar provisions

17.30.060 Lift gates in retracted position.

No truck shall be operated on City streets equipped with a lift gate, unless the lift gate is retracted in stored position. (1960 C., § 834.060; 1994 C., § 17.30.060; Ord. No. 57831, § 1(part), 1979.)

17.30.070 Transportation of hazardous materials.

A. It is unlawful for any person to operate a bus, truck, truck-tractor and trailer combination(s) or any other commercial motor vehicle, trailer, or self propelled construction equipment upon any highway, street, or alley in the City, unless the vehicle is equipped with the equipment required by and operated in accordance with Title 49 Subchapter C and Part 397, of the Code of Federal Regulations, as amended, pertaining to the transportation of hazardous materials as defined and classified by said regulations. Additionally, this section shall also apply to all vehicles operated intrastate, as well as those operated solely within the federal commercial zone, as defined in the Code of Federal Regulations mentioned herein.

B. In addition, the following regulations shall apply:

1. The hazardous material may not be moved unless the vehicle is marked and placarded in accordance with Section 177.823 of the Department of Transportation Hazardous Material Regulations.

2. a. No motor vehicle shall be operated on any tire that has fabric exposed to the tread or sidewall.

b. Any tire on the front wheels of a truck or truck-tractor shall have a tread groove pattern depth of at least 4/32 of an inch when measured at any point on a major tread groove. The measurements shall not be made where tie bars, humps, or fillets are located.

3. No person may smoke or carry a lighted cigarette, cigar, or pipe on or within twenty-five (25) feet of (i) a motor vehicle which contains explosives, oxidizing materials, or flammable materials, or (ii) an empty tank motor vehicle which has been used to transport flammable liquids or gases and which, when so used, was required to be marked or placarded in accordance with Section 177.823 of Title 49 of the Code of Federal Regulations.

4. When transporting property consisting of hazardous materials of a type and quantity that requires the vehicle to be marked or placarded under Section 177.823 of Hazardous Material Regulations and that weighs two thousand five hundred (2,500) pounds or more in the case of one (1) dangerous article or an empty tank motor vehicle which has been used to transport flammable liquids or gases and which, when so used, was required to be marked or placarded in accordance with the rules in Section 177.823 of the Hazardous Material Regulations:

a. The vehicle must at all times be equipped with the applicable emergency equipment required by the Code of Federal Regulations, Title 49, Part 393, Subpart H and any driver shall not fail to use or make use of such emergency equipment when and as needed.

b. A motor vehicle must not be parked on or within five (5) feet of the traveled portion of public streets except for brief periods when the necessities of operation require the vehicle to be parked and make it impracticable to park the vehicle in any other place. (1960 C., § 834.070; 1994 C., § 17.30.070; Ord. No. 60290, § 2, 1987; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.32

EQUIPMENT REQUIRED ON VEHICLES

Sections:

17.32.010	**Motor vehicles to be operated and maintained in safe condition.**
17.32.020	**Safety glass.**
17.32.030	**Horns and warning devices.**
17.32.040	**Excessive noise.**
17.32.050	**Exhaust system.**
17.32.060	**Rearview mirrors.**
17.32.070	**Headlamps.**
17.32.080	**Tail lamps and reflectors.**
17.32.090	**Lights on motorcycles.**
17.32.100	**Brakes.**
17.32.110	**Visibility.**
17.32.120	**Restrictions as to tire equipment.**
17.32.130	**Mud flaps required on certain vehicles.**

17.32.010 Motor vehicles to be operated and maintained in safe condition.

A. No person shall drive on any highway, street, or alley in the City, a motor vehicle on which there is mechanically defective equipment or other defective vehicle parts as to be reasonably likely, because of such defects, to cause injury to persons or damage to property.

B. It is unlawful for any person to operate any commercial motor vehicle licensed for more than twelve thousand (12,000) pounds (which is being used for actual commercial purposes or for the furtherance of a business), either singly or in combination with a trailer, or any self-propelled construction equipment, as all are defined in Chapter 17.02 of the Revised Code of the City of St. Louis, or RSMo Ch. 301, unless the vehicles are equipped and operated as required by Title 49, Code of Federal Regulations, Part 393, Subparts B through I, and Part 396 as amended.

C. The provisions of Subsection B shall not apply to any commercial motor vehicle licensed for a gross weight of forty-two thousand (42,000) pounds or less when the license plate has been designated for farm use by the letter "F" as authorized by RSMo 301.030 or to any trailer towed by such commercial vehicle unless such vehicle or vehicles are transporting hazardous materials, except fertilizer, as defined in Title 49, Code of Federal Regulations.

D. Every employer and employee operating or causing the operation of commercial motor vehicles within the City shall comply with this section and all other sections dealing with the safe operations of commercial motor vehicles contained in this Code. No employer shall operate a commercial motor vehicle, or cause or permit it to be operated, unless it is equipped and operated by the requirements and specifications of this Code.

E. Officers of the Metropolitan Police Department are hereby vested with power and authority to enforce wholly within commercial transportation related facilities located within the City, the rules and regulations of the Code of Federal Regulations, related state statutes, and related City ordinances, as they apply to motor vehicles and their carriers.

(For the purpose of this section, the term "motor carrier" means a for-hire motor carrier or private motor carrier of property or persons. The term "motor carrier" includes a motor carrier's agents, officers and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers and employees concerned with the installation, inspection, and maintenance of motor vehicle equipment and/or accessories.)

F. For the purpose of enforcing this Code within the City, Officers of the Metropolitan Police Department, and members of the St. Louis Fire Department, shall be authorized to enter the cargo area of commercial motor vehicles or trailers, or to remove any covering of cargo on vehicles, to determine that the contents thereof are properly secured as required by law; and if the vehicle is transporting hazardous material as defined by Title 49 of the Code of Federal Regulations, that said material is also being transported and secured as required by law. If any imminently hazardous violations of the Hazardous Material Regulations are discovered they shall immediately be reported to the Fire Marshal of the City (or designated representative), for his/her enforcement action and/or orders of safety action(s).

G. Vehicles Declared Out-of-Service. Any vehicles which by reason of defective equipment, equipment failure, or equipment out of proper adjustment shall be placed out-of-service on site. No person shall move or cause a vehicle which has been placed out-of-service to be moved, nor shall the out-of-service sticker be removed from the vehicle unless the cause of the out-of-service action has been corrected, or unless the vehicle is towed from the scene by a properly licensed wrecker vehicle, as defined in Chapter 8.110 of this Code. The out-of-service criteria which shall be used will be the same criteria adopted and in use by the United States Department of Transportation (DOT)—Office of Motor Carrier Safety (OMCS), in conjunction with the Commercial Vehicle Safety Alliance (CVSA), as amended. A current copy of the out-of-service criteria shall be maintained at the office of the City Register.

H. Violations Defined. Each person who fails to comply in whole or in part with any of the provisions in this section shall have committed a violation of this section. Likewise, any person who aids or abets another of such failure to comply shall have committed a violation of this section. Failure to comply with more than one provision of this section shall constitute multiple violations. (1960 C., § 835.010; 1994 C., § 17.32.010; Ord. No. 62069, § 1, 1990; Ord. No. 60295, § 1, 1987; Ord. No. 57831, § 1(part), 1979.)

17.32.020 Safety glass.

No motor vehicle shall be operated upon any street unless the vehicle is equipped with safety glass as defined by the Revised Statutes of the State of Missouri. (1960 C., § 835.020; 1994 C., § 17.32.020; Ord. No. 57831, § 1(part), 1979.)

17.32.030 Horns and warning devices.

A. Every motor vehicle shall be equipped with a horn, or similar warning device in good working order and capable of emitting sound audible under normal conditions from a distance of no less than 200 feet but no horn or other warning device shall emit an unreasonably loud sound.

B. No vehicle shall be equipped, nor shall any person use upon vehicle any siren, whistle or bell, except as otherwise permitted in this chapter.

C. No person shall drive a motor vehicle to which is attached a gong, bell or similar device in any street, except food vendors as regulated in Chapter 8.42. This shall not apply to authorized emergency vehicles. (1960 C., § 835.030; 1994 C., § 17.32.030; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.170(1) (2016) Horns

17.32.040 Excessive noise.

No person shall operate any vehicle constructed or so out of repair, or loaded in such manner as to create

unreasonably loud or unnecessary noise. (1960 C., § 835.040; 1994 C., § 17.32.040; Ord. No. 57831, § 1(part), 1979.)

17.32.050 Exhaust system.

A. *Required.* Every motor vehicle shall at all times be equipped with an exhaust system in good working order and in constant operation to prevent excessive or unusual noise. No person shall use a muffler cut-out, bypass, straight pipe exhaust system or other system that bypasses the catalytic converter or muffler, or similar device upon a motor vehicle.

B. *Modified Exhaust System.* No person shall operate or drive a vehicle on which the exhaust system has been modified in a manner which will amplify or increase the noise emitted by the muffler originally installed on the vehicle, which shall comply with the requirements of this section, and no person shall replace a muffler or exhaust system originally installed on a vehicle with a straight pipe exhaust system.
(1960 C., § 835.050; 1994 C., § 17.32.050; Ord. No. 71487, § 1, 3-30-2022; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.170(2) (2016) Muffler cutouts

17.32.060 Rearview mirrors.

Every motor vehicle shall be equipped with a rearview mirror and, if so constructed or loaded as to obstruct the driver's view to the rear thereof from the driver's position shall be equipped with a mirror on each side so located as to reflect to the driver a view of the highway for a distance of at least two hundred (200) feet to the rear of such vehicle. (1960 C., § 835.060; 1994 C., § 17.32.060; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.170(4) (2016) Mirrors

17.32.070 Headlamps.

All motor vehicles shall be provided with headlamps meeting the standards and specifications set forth in the Revised Statutes of the State of Missouri. Lighted headlamps shall be required at any time from a half-hour after sunset to a half-hour before sunrise and at any other time when there is not sufficient light to render clearly discernable persons and vehicles on the highway at a distance of five hundred (500) feet ahead. Lighted headlamps shall also be required any time the weather conditions require usage of the motor vehicle's windshield wipers to operate the vehicle in a careful and prudent manner as defined in RSMo 304.012. The provisions of this section shall be interpreted to require lighted lamps during periods of fog even if the usage of the windshield wipers is not necessary to operate the vehicle in a careful and prudent manner. Motor vehicles shall display at least two (2) white lights mounted at the front and directed forward, and two (2) red lights mounted at the back and directed toward the rear. (1960 C., § 835.070; 1994 C., § 17.32.070; Ord. No. 66703, § 1, 2005; Ord. No. 57831, § 1(part), 1979.)

17.32.080 Tail lamps and reflectors.

A. Every motor vehicle and trailer, except motorcycles, shall have at least 2 rear lamps, not less than 15 inches or more than 48 inches above the ground upon which the vehicle stands, which when lighted will exhibit a red light plainly visible from the distance of 500 feet to the rear; provided, however, that the rear lamps may be mounted higher than 48 inches on any vehicle carrying inflammable liquids as cargo. Either such rear lamps or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration marker and render it clearly legible from a distance of 50 feet to the rear. When the rear registration marker is illuminated by an electric lamp other than the required rear lamps, all such lamps shall be turned on or off only by the same control switch at all times.

B. Every motor vehicle, and trailer, except motorcycles, with a capacity of more than 6 passengers registered in any state after January 1, 1966, when operated on a roadway, shall carry at the rear at least 2 approved red reflectors, at least 1 at each side, so designated, mounted on the vehicle and maintained as to be visible for 500 feet to the rear of such vehicle during the times when lighted lamps are required. Every such reflector shall meet requirements of this chapter and shall be mounted upon the vehicle at a height not to exceed 60 inches nor less than 24 inches above the surface upon which the vehicle stands. (1960 C., § 835.080; 1994 C., § 17.32.080; Ord. No. 57831, § 1(part), 1979.)

RSMo:

RSMo 304.075(1), (3) (2016) Similar provisions

17.32.090 Lights on motorcycles.

A. No driver shall operate a motorcycle unless it is equipped during the same periods with one lighted lamp in front and one on the rear. The light of the front lamp of a motorcycle shall be white and be visible at a

point at least 200 feet ahead of the motorcycle. The rear lamp shall include a red light visible from the rear and an additional white light which shall shine upon the

number plate in such a manner as to render the numerals thereon visible for at least 50 feet in the direction from which the motorcycle is proceeding.

B. Every motorcycle, when operated on a roadway, shall also carry at the rear, either as part of the rear lamp or separately, at least one approved red reflector, which shall be of such size and characteristics and so maintained as to be visible during the times when lighted lamps are required from all distances within three hundred feet to fifty feet from such vehicle when directly in front of a motor vehicle displaying lawful undimmed head lamps.

C. Every motorcycle equipped with a sidecar or other attachment shall be equipped with a lamp on the outside limit of such attachment capable of displaying a white light to the front. (1960 C., § 835.090; 1994 C., § 17.32.090; Ord. No. 57831, § 1(part), 1979.)

17.32.100 Brakes.

A. *Required.* Every motor vehicle or combination of motor vehicles except motorcycles shall be provided at all times with two sets of adequate brakes kept in good working order, and motorcycles shall be provided with one set of adequate brakes kept in good working order. If these two separate means of applying the brakes are connected in any way, they shall be so constructed that failure of any one part of the operating mechanism shall not leave the vehicle without operative brakes.

B. *Parking Brakes.* Every motor vehicle or combination of motor vehicles shall be provided at all times with a parking brake or brakes adequate to hold the vehicle or combination on any grade, under any condition of road. (1960 C., § 835.100; 1994 C., § 17.32.100; Ord. No. 57831, § 1(part), 1979.)

17.32.110 Visibility.

A. *Obstruction.* No person shall drive any motor vehicle when anything on the windshield or on any window or within the vehicle obstructs the driver's clear view of the street.

B. *Wipers Required.* Every motor vehicle, except motorcycles, shall be equipped with adequate windshield wipers, and shall be maintained in good working order. (1960 C., § 835.110; 1994 C., § 17.32.110; Ord. No. 57831, § 1(part), 1979.)

17.32.120 Restrictions as to tire equipment.

Every solid rubber tire on a vehicle shall have rubber on its entire traction surface at least one inch thick above the edge of the flange of the entire periphery. (1960 C., § 835.120; 1994 C., § 17.32.120; Ord. No. 57831, § 1(part), 1979.)

17.32.130 Mud flaps required on certain vehicles.

A. Mud flaps shall be required on the rear wheels of all of the following vehicles:

1. A truck-tractor when not coupled to a trailer, the body of which provides protection for the vertical throw of road elements from the rear wheels of the truck-tractor;

2. A trailer, if not equipped with rear fenders meeting the requirements set forth in subdivision 3 of this subsection;

3. Any other vehicle(s) which because of design or modification(s) is not equipped with fenders; or if equipped with fenders, the fender of which is greater than twenty-four (24) inches from the ground, when the vertical measurements are made from the lowest part of the fender to the ground. Said fender must be of solid construction to cover the entire tread width of the tires, provided a suitable material may be affixed to the fenders that offers the same coverage and protection on vehicles equipped with tires which protrude from the fender sides.

B. If mud flaps are required and used they shall meet the following specifications:

1. Construction and design shall be of a rigid material or flexible material which is of sufficiently rigid character to provide adequate protection while the vehicle is in motion, and the flaps must remain in a vertical plane while the vehicle is in motion and when under pressure.

2. They shall be of sufficient width to cover the full tread width of the tire or tires being protected, and shall not be less than eight (8) inches from the ground.

3. The mud flaps shall be installed so that they extend from the underside of the vehicle body. In the case of a truck-tractor or a vehicle not equipped with fenders meeting the requirements herein, the flaps shall extend from the horizontal top of the tire in a vertical plane, and shall not be less than eight (8) inches from the ground.

4. A vehicle equipped with tandem wheels is only required to be equipped with mud flaps on the rearmost wheels of said vehicle. (1960 C., § 835.130; 1994 C., § 17.32.130; Ord. No. 60232, § 2, 1987; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.34

TRAFFIC VIOLATION BUREAU

Sections:

17.34.010 Under administration of Clerk of City Court.

17.34.020 Designation of fines and offenses.

17.34.030 Violation notice.

17.34.040 Payment of fines—Time limits.

17.34.010 Under administration of Clerk of City Court.

The Clerk of the City Court shall be in charge of the Traffic Violation Bureau. The Bureau shall be open at such hours as he shall designate. (1960 C., § 836.010; 1994 C., § 17.34.010; Ord. No. 58731, § 1(part), 1979.)

17.34.020 Designation of fines and offenses.

The judges of the City Courts shall designate the various offenses for which payment of fines and costs may be accepted by the Traffic Violation Bureau. The Court, by order to be prominently posted at the place where the fines are to be paid, shall specify by suitable schedules the amount of fines and costs to be imposed for first and subsequent offenses, designating each offense specifically in the schedules, and shall further specify what number of offenses shall require appearance before the City Court. Fines and costs shall be paid to, receipted by and accounted for by the Violation Clerk in accordance with these rules. (1960 C., § 836.020; 1994 C., § 17.34.020; Ord. No. 57831, § 1(part), 1979.)

17.34.030 Violation notice.

The Violation Clerk shall issue a summons to any person with a violation notice who wishes to plead not guilty, notifying the arresting officer to be present in court. (1960 C., § 836.030; 1994 C., § 17.34.030; Ord. No. 57831, § 1(part), 1979.)

17.34.040 Payment of fines—Time limits.

Any person charged with an offense for which payment of a fine may be made to the Traffic Violation Bureau shall have the option of paying such fine and costs, within the time specified in the summons, at the Traffic Violation Bureau upon entering a plea of guilty and upon waiving appearance in court. (1960 C., § 836.040; 1994 C., § 17.34.040; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.36

BICYCLES AND SIMILAR DEVICES

Sections:

17.36.010 Effect of regulations.

17.36.020 Traffic laws apply to persons riding bicycles.

17.36.030 Riding on bicycles.

17.36.040 Clinging to vehicles.

17.36.050 Where ridden.

17.36.060 Carrying articles.

17.36.070 Lamps and other equipment on bicycles.

17.36.080 Riding on highway prohibited.

17.36.090 Reckless riding.

17.36.010 Effect of regulations.

A. The parent of the child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

B. These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated herein. (1960 C., § 837.010; 1994 C., § 17.36.010; Ord. No. 57831, § 1(part), 1979.)

17.36.020 Traffic laws apply to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter; except as to special regulations in this chapter and except as to those provisions of this chapter which by their nature can have no application. (1960 C., § 837.020; 1994 C., § 17.36.020; Ord. No. 57831, § 1(part), 1979.)

17.36.030 Riding on bicycles.

A. A person propelling a bicycle shall not ride other than upon or astride a permanent seat attached thereto.

B. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped. (1960 C., § 837.030; 1994 C., § 17.36.030; Ord. No. 57831, § 1(part), 1979.)

17.36.040 Clinging to vehicles.

No person shall cling to any vehicle to be pulled thereby upon a roadway. (1960 C.§ 837.040; 1994 C., § 17.36.040; Ord. No. 57831, § 1(part), 1979.)

17.36.050 Where ridden.

A. Every person operating a bicycle upon a roadway shall ride as near to the right side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.

B. Persons riding bicycles upon a roadway shall not ride more than two abreast except on paths or roadways set aside for the exclusive use of bicycles.

C. Riding on Sidewalks.

1. No person shall ride a bicycle upon a sidewalk except in an area zoned residential.

2. No person (15) or more years of age shall ride a bicycle upon any sidewalk, unless that sidewalk is established and signed as a bike path.

3. Whenever any person is riding a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian. (1960 C., § 837.050; 1994 C., § 17.36.050; Ord. No. 57831, § 1(part), 1979.)

17.36.060 Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the driver from keeping at least one hand upon the handle bars. (1960 C., § 837.060; 1994 C., § 17.36.060; Ord. No. 57831, § 1(part), 1979.)

17.36.070 Lamps and other equipment on bicycles.

A. Every bicycle when in use at night time shall be equipped with a front-facing lamp (white light) on the front or carried by the rider.

B. Every bicycle when in use at night time shall be equipped with a rear-facing red reflector, on the rear, at least two square inches in reflective surface area.

C. Every bicycle when in use at night time shall be equipped with colorless or amber reflectors on both the front and rear surfaces of all pedals.

D. Every bicycle when in use at night time shall be equipped with a side-facing colorless or amber reflector on each side of the front wheel, mounted on the wheel spokes and a colorless or red reflector on the rear wheel; or continuous retroreflective material (at least three-sixteenths of an inch wide) on each side of both tires.

E. Every bicycle shall be equipped with proper brakes. (1960 C., § 837.070; 1994 C., § 17.36.070; Ord. No. 57831, § 1(part), 1979.)

17.36.080 Riding on highway prohibited.

It shall be unlawful for any person to enter or travel upon any portion of a limited-access highway with a bicycle or a tricycle, or a velocipede or any other contrivance except a motor vehicle. (1960 C., § 837.080; 1994 C., § 17.36.080; Ord. No. 57831, § 1(part), 1979.)

17.36.090 Reckless riding.

No person shall drive any bicycle or tricycle on a parking lot carelessly in willful or wanton disregard of the rights and safety of others, or without due caution, or at a speed, or in any manner that endangers any person or property. (1960 C., § 837.090; 1994 C., § 17.36.090; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.37

MOTORIZED SCOOTERS

Sections:

17.37.010 Definitions.
17.37.020 Operator rights.
17.37.030 Equipment required.
17.37.040 Exemptions from this Code provisions.
17.37.050 Operation—Motor capable of disengagement.
17.37.060 Operation—Right-hand curb.
17.37.070 Operator restrictions.
17.37.080 Penalty for violation.

17.37.010 Definitions.

For purposes of this chapter a "motorized scooter" shall mean any two-wheeled device that has handlebars, is designed to be stood upon by the operator, and is powered by a motor that is capable of propelling the device with or without human propulsion at a speed of not more than 25 miles per hour. (1994 C., § 17.37.010; Ord. No. 65138, § 1, 2001.)

17.37.020 Operator rights.

Every person operating a motorized scooter shall have all the rights and is subject to all the provisions applicable to the driver of any other vehicle as established by ordinance, including, but not limited to, ordinances concerning driving under the influence of alcoholic beverages or drugs, except those provisions which,

by their very nature, can have no application. (1994 C., § 17.37.020; Ord. No. 65138, § 2, 2001.)

17.37.030 Equipment required.

Every motorized scooter operated upon any street or alley during darkness shall be equipped with the following:

A. A lamp emitting a white light which, while the motorized scooter is in motion, illuminates the street or alley in front of the operator and is visible from a distance of 300 feet in front and from the sides of the motorized scooter;

B. A red reflector on the rear that is visible from a distance of 500 feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle;

C. A white or yellow reflector on each side visible from the front and rear of the motorized scooter from a distance of 200 feet. (1994 C., § 17.37.030; Ord. No. 65138, § 3, 2001.)

17.37.040 Exemptions from this Code provisions.

A person operating a motorized scooter is not subject to the provisions of this this Code relating to registration, and license plate requirements, and, for those purposes, a motorized scooter is not a motor vehicle. (1994 C., § 17.37.040; Ord. No. 65138, § 4, 2001.)

17.37.050 Operation—Motor capable of disengagement.

A. A motorized scooter shall comply with one of the following:

1. Operate in a manner so that the motor is disengaged or ceases to function when the brakes are applied;

2. Operate in a manner so that the motor is engaged through a switch or mechanism that, when released, will cause the motor to disengage or cease to function.

B. It is unlawful for a person to operate a motorized scooter that does not meet one of the requirements of Subsection A. (1994 C., § 17.37.050; Ord. No. 65138, § 5, 2001.)

17.37.060 Operation—Right-hand curb.

Any person operating a motorized scooter upon a street or alley shall ride as close as practicable to the right-hand curb or right edge of the street or alley, except under the following situations:

A. When overtaking and passing another vehicle proceeding in the same direction;

B. When preparing for a left turn, the operator shall stop and dismount as close as practicable to the right-hand curb or right edge of the street and complete the turn by crossing the street on foot;

C. When reasonably necessary to avoid conditions, including, but not limited to, fixed or moving objects, vehicles, bicycles, pedestrians, animals, surface hazards, or substandard width lanes, which make it unsafe to continue along the right-hand curb or right edge of the street. (1994 C., § 17.37.060; Ord. No. 65138, § 6, 2001.)

17.37.070 Operator restrictions.

The operator of a motorized scooter shall not do any of the following:

A. Operate a motorized scooter unless it is equipped with a brake that will enable the operator to make a braked-wheel skid on dry, level, clean pavement;

B. Operate a motorized scooter on a highway as defined under RSMo 226.010(7);

C. Operate a motorized scooter without wearing a properly fitted and fastened helmet or other headgear that meets the standards of the Missouri Director of Revenue as provided for in RSMo 302.020.2;

D. Operate a motorized scooter when the operator is under the age of 16 years;

E. Operate a motorized scooter with any passengers in addition to the operator;

F. Operate a motorized scooter carrying any package, bundle, or article that prevents the operator from keeping at least one hand upon the handlebars;

G. Operate a motorized scooter with the handlebars raised so that the operator must elevate his or her hands above the level of his or her shoulders in order to grasp the normal steering grip area;

H. Leave a motorized scooter lying on its side on any sidewalk, or park a motorized scooter on a sidewalk in any other position, so that there is not an adequate path for pedestrian traffic;

I. Attach the motorized scooter or himself or herself while on the street or alley, by any means, to any other vehicle on the street or alley;

J. Operate a motorized scooter at a speed in excess of 15 miles per hour. (1994 C., § 17.37.070; Ord. No. 65138, § 7, 2001.)

17.37.080 Penalty for violation.

Any person found guilty of a violation of any of the provisions of this chapter shall be subject to a fine

of not more than five hundred dollars ($500.00) or a term of imprisonment of not more than ninety (90) days or by both a fine and imprisonment. (1994 C., § 17.37.080; Ord. No. 65138, § 8, 2001.)

Chapter 17.38

SNOW EMERGENCY

Sections:

17.38.010 **Definitions.**

17.38.020 **Parking on snow emergency routes.**

17.38.030 **Conditions of motor vehicles operated on snow emergency routes.**

17.38.040 **Stalled vehicle on snow emergency route.**

17.38.050 **Declarations of the Snow Coordinator.**

17.38.060 **Termination of parking prohibition by the Snow Coordinator.**

17.38.070 **Provisions temporarily effective to take precedence.**

17.38.080 **Signs to mark snow emergency routes.**

17.38.090 **Removal.**

17.38.100 **Snow emergency routes designated.**

17.38.110 **Depositing of snow and ice restricted.**

17.38.120 **Interference with snow plows.**

17.38.130 **Studded tires, prohibited when.**

17.38.140 **Penalties.**

17.38.010 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

A. The "Snow Coordinator" is the Director of Streets.

B. "Snow emergency routes" are those streets marked as such in accordance with the provisions of this chapter.

C. "Snow tires" are radial tires or any other tires mounted on drive wheels of motor vehicles which are designed to give effective traction on snow, mud, or ice covered streets by means of extra heavy duty treads with specifically high-traction patterns except that no tire so defined shall be construed to be a snow tire which is damaged or worn to the extent that its performance would be substantially impaired.

D. "Tire chains" are any metal chains mounted on drive wheel tires of motor vehicle which cross the tread of each such tire laterally in at least three (3) different places.

E. "Studded tires" are any tires mounted on drive wheels of motor vehicles which are especially designed to give effective traction on snow, mud, or ice covered streets by means of metal studs spaced as to give high traction patterns except that no tire so defined shall be construed to be a studded tire which is damaged or worn to the extent that its performance would be substantially impaired. (1960 C., § 838.010; 1994 C., § 17.38.010; Ord. No. 57831, § 1(part), 1979.)

17.38.020 Parking on snow emergency routes.

A. Whenever the Snow Coordinator finds, on the basis of falling snow, sleet or freezing rain, or on the basis of a forecast by the U.S. Weather Bureau or other weather service of snow, sleet or freezing rain, that weather conditions will make it necessary that motor vehicle traffic be expedited and that parking on City streets be prohibited or restricted for snow plowing and other purposes, the Snow Coordinator shall put into effect a parking prohibition on parts or all snow emergency routes as necessary by declaring it in a manner prescribed in this chapter.

B. Once in effect, prohibition under this section shall remain in effect until terminated by announcement of the Snow Coordinator in accordance with this chapter. (1960 C., § 838.020; 1994 C., § 17.38.020; Ord. No. 57831, § 1(part), 1979.)

17.38.030 Conditions of motor vehicles operated on snow emergency routes.

A. No person operating a motor vehicle on a snow emergency route on which there is a covering of snow, sleet or ice shall allow such vehicle to become stalled wholly or partly because the drive wheels thereof are not equipped with effective tire chains, snow tires or studded tires.

B. No person operating a motor vehicle on a part of a snow emergency route on which there is a covering of snow, sleet or ice, or on which there is a parking prohibition in effect, shall allow such vehicle to become stalled because the motor fuel supply is exhausted or the battery has become inoperative. (1960 C., § 838.030; 1994 C., § 17.38.030; Ord. No. 57831, § 1(part), 1979.)

17.38.040 Stalled vehicle on snow emergency route.

Whenever a vehicle becomes stalled for any reason, whether or not in violation of this chapter, on any part

of a snow emergency route on which there is a covering of snow, sleet or ice, or on which there is a parking prohibition in effect, the person operating such vehicle shall take immediate action to have the vehicle towed or pushed off the roadway of such snow emergency route onto the first cross street which is not a snow emergency route. No person shall abandon or leave his vehicle in the roadway of a snow emergency route regardless of whether he indicated, by raising the hood or otherwise, that the vehicle is stalled. (1960 C., § 838.040; 1994 C., § 17.38.040; Ord. No. 57831, § 1(part), 1979.)

17.38.050 Declarations of the Snow Coordinator.

A. The Snow Coordinator shall cause each declaration of a snow route emergency made by him pursuant to this chapter to be publicly announced by means of broadcasts and/or telecasts from stations with a normal operating range covering the City, and he may cause such declaration to be further announced in newspapers of general circulation when feasible. Each announcement shall describe the action taken by the Snow Coordinator including the time it became or will become effective, and shall specify the streets affected.

B. The Snow Coordinator shall make or cause to be made a record of each time and date when any declaration is announced to the public in accordance with this section. (1960 C., § 838.050; 1994 C., § 17.38.050; Ord. No. 57831, § 1(part), 1979.)

17.38.060 Termination of parking prohibition by the Snow Coordinator.

Whenever the Snow Coordinator shall find that some or all of the conditions which give rise to a parking prohibition in effect pursuant to this chapter no longer exist, he may declare the prohibition terminated, in whole or in part, in a manner prescribed by this chapter, effective immediately upon announcement. (1960 C., § 838.060; 1994 C., § 17.38.060; Ord. No. 57831, § 1(part), 1979.)

17.38.070 Provisions temporarily effective to take precedence.

Any provision of this chapter which becomes effective by declaration of the Snow Coordinator or upon the occurrence of certain weather conditions shall, while temporarily in effect, take precedence over other conflicting provisions of law normally in effect, except that it shall not take precedence over provisions of law relating to traffic accidents, emergency travel of authorized emergency vehicles, or emergency traffic directions of a police officer. (1960 C., § 838.070; 1994 C., § 17.38.070; Ord. No. 57831, § 1(part), 1979.)

17.38.080 Signs to mark snow emergency routes.

On each street designated by this chapter as a snow emergency route, the Snow Coordinator shall post special signs at intervals indicating that this is an emergency snow route. These signs shall be distinctive and uniform in appearance and shall be plainly readable to persons traveling on the street. (1960 C., § 838.080; 1994 C., § 17.38.080; Ord. No. 57831, § 1(part), 1979.)

17.38.090 Removal.

A. *Generally.* Whenever any vehicle shall be found parked or abandoned on a snow emergency route in violation of this chapter, such vehicle may be removed and conveyed by means of towing and impounding the same or by towing or otherwise removing to the nearest available parking space on the first cross street which is not a snow emergency route.

B. *Parking Pedestrian Notice.* Whenever any vehicle shall be found illegally parked or abandoned in violation of this chapter, the police shall notify the owner or driver of such vehicle by handing to him or affixing on the vehicle a parking pedestrian notice. The owner or driver of the vehicle may appear in person or mail the sum of twenty-five dollars ($25.00) to the Traffic Violation Bureau within five (5) days excluding Saturdays, Sundays and holidays in lieu of the penalty provided in Section 17.38.140, and in full satisfaction of such violation. Upon failure to pay such penalty within five (5) days, the owner of the vehicle found parked in violation of this chapter shall be deemed guilty of an infraction and upon conviction punished as provided in Section 17.38.140.

C. *Owner's Responsibility.* The presence of any vehicle found parked or abandoned in violation of this chapter on any snow emergency routes shall be prima facie evidence that the person, firm or corporation in whose name such vehicle is registered, in either the records of the City License Collector or the records of the Director of Revenue of the State of Missouri, committed or authorized such violation. (1960 C., § 838.090; 1994 C., § 17.38.090; Ord. No. 57890, § 1, 1979; Ord. No. 57831, § 1(part), 1979.)

17.38.100 Snow emergency routes designated.

The schedule of streets or parts of streets controlled by this section shall be kept on file in the office of the Register and the Traffic and Transportation

Division, and shall be available for examination. (1960 C., § 838.100; 1994 C., § 17.38.100; Ord. No. 57831, § 1(part), 1979.)

17.38.110 Depositing of snow and ice restricted.

No person, partnership, corporation, joint-stock company, syndicate or association, shall deposit or cause to be deposited any snow and ice on or against a fire hydrant or on any sidewalk, street or loading and unloading areas of a public transportation system, except that snow and ice may be windrowed on public roadways incident to the cleaning thereof or windrowed on curbs incident to the cleaning of sidewalks in business districts. (1960 C., § 838.110; 1994 C., § 17.38.110; Ord. No. 57831, § 1(part), 1979.)

17.38.120 Interference with snow plows.

No vehicle shall impede or interfere in any way with a snow plow or other snow removal vehicle while such snow plow or other removal vehicle is in operation on City streets. (1960 C., § 838.120; 1994 C., § 17.38.120; Ord. No. 57831, § 1(part), 1979.)

17.38.130 Studded tires, prohibited when.

No person shall operate any motor vehicle upon any street or highway between the first day of April and the first day of November while the motor vehicle is equipped with tires containing metal or carbide studs. (1960 C., § 838.130; 1994 C., § 17.38.130; Ord. No. 57831, § 1(part), 1979.)

17.38.140 Penalties.

Any person convicted of a violation of any provision of this chapter shall be punished by a fine of not more than $500.00, or by imprisonment for not more than 90 days, or by both such fine and imprisonment. (1960 C., § 838.140; 1994 C., § 17.38.140; Ord. No. 57831, § 1(part), 1979.)

Chapter 17.40

PENALTIES

Sections:

17.40.010 Class I general offense.

17.40.020 Penalties designated.

17.40.030 Conviction on alcohol- or drug-related traffic offense—Costs.

17.40.040 Moving violations in construction or work zones.

17.40.010 Class I general offense.

It shall be a Class I general offense for any person to do any act forbidden by this division, or fail to perform any act required by this division. (1960 C., § 839.010; 1994 C., § 17.40.010; Ord. No. 57831, § 1(part), 1979.)

17.40.020 Penalties designated.

Any person convicted of a violation of this division shall be punished by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than 90 days in jail or both such fine and imprisonment. (1960 C., § 839.020; 1994 C., § 17.40.020; Ord. No. 57831, § 1(part), 1979.)

17.40.030 Conviction on alcohol- or drug-related traffic offense—Costs.

Pursuant to RSMo 577.048, City Court Judges may order any person upon a plea of guilty or a finding of guilty for the offense of driving under the influence of alcohol or a controlled substance in violation of Section 17.16.290 of the Revised Code of the City of St. Louis to reimburse the St. Louis Metropolitan Police Department the costs associated with the arrest of said person. Such costs shall include the reasonable cost of making the arrest, including the cost of any chemical test made pursuant to RSMo Ch. 577, to determine the alcohol or drug content of the person's blood, and the costs of processing, charging, booking and holding such person in custody. A record of all such assessments and resulting collections shall be maintained by the Clerk of the City Courts and transmitted monthly to the Budget Division of the City of St. Louis. All monies collected pursuant to this legislation shall be maintained on the books of the City in a separate account established by the Comptroller. The St. Louis Metropolitan Police Department may establish a schedule of such costs; however, the court may order the costs reduced if it determines that the costs are excessive. (1994 C., § 17.40.030; Ord. No. 64297, § 2, 1998; Ord. No. 62741, § 1, 1992.)

Editor's Note:

RSMo 544.048 has been transferred to RSMo 488.5334.

17.40.040 Moving violations in construction or work zones.

A. As used in this section the term "construction zone" or "work zone" means any area upon or around any street or highway which is visibly marked by the Missouri Department of Transportation, the Street

Department for the City of St. Louis or a contractor or subcontractor performing work for the Missouri Department of Transportation or the City Street Department as an area where construction, maintenance, incident removal, or other work is temporarily occurring. The term "work zone" or "construction zone" also includes the lanes of streets or highways leading up to the area upon which an activity described in this subsection is being performed, beginning at the point where appropriate signs or traffic control devices are posted or placed. The term "worker" or "highway worker" shall mean any person that is working in a construction zone or work zone.

B. A person shall be deemed to be in violation of this section if such person is found guilty for any of the following when the offense occurs within a construction zone or work zone, as defined in this section:

1. Exceeding the posted speed limit by fifteen miles per hour or more;

2. Passing in violation of Subsection 4 of RSMo 304.582;

3. Failure to stop for a work zone flagman or failure to obey traffic control devices erected in the construction zone or work zone for purposes of controlling the flow of motor vehicles through the zone;

4. Driving through or around a work zone by any lane not clearly designated to motorists for the flow of traffic through or around the work zone;

5. Physically assaulting, or attempting to assault, or threatening to assault a highway worker in a construction zone or work zone, with a motor vehicle or other instrument;

6. Intentionally striking, moving, or altering barrels, barriers, signs, or other devices erected to control the flow of traffic to protect workers and motorists in the work zone for a reason other than avoidance of an obstacle, an emergency, or to protect the health and safety of an occupant of the motor vehicle or of another person.

C. Any violation of the provisions of this section shall be subject to a fine of not less than one hundred fifty dollars ($150.00) nor more than five hundred dollars ($500.00).

D. This section shall not be construed to enhance the assessment of court costs or the assessment of points pursuant to RSMo 302.302. (1994 C., § 17.40.040; Ord. No. 67324, § 4, 2006; Ord. No. 65351, §§ 1—3, 2001.)

DIVISION II. MISCELLANEOUS PROVISIONS

Chapter 17.50

PEDESTRIAN TRAVEL

Sections:

17.50.010 **Exclusive pedestrian travel—On certain alley designated.**

17.50.020 **Placement of barricades and curbing.**

17.50.010 Exclusive pedestrian travel—On certain alley designated.

That portion of the north-south alley between Arsenal and Hoffman Streets in City block 4658-S, from the north curb line of Arsenal Street and extending in a northerly direction 122 feet, more or less, to its intersection with the east-west alley, is hereby limited to pedestrian travel exclusively. (1994 C., § 17.50.010; Ord. No. 54501, § 1, 1967.)

17.50.020 Placement of barricades and curbing.

The Director of Streets is hereby authorized and directed to place appropriate and necessary barricades and curbing to ensure that said portion of this alley will be used exclusively for pedestrian travel only. (1994 C., § 17.50.020; Ord. No. 54501, § 2, 1967.)

Chapter 17.52

VEHICLE LICENSES

City Counselor Ops.: 8763

Sections:

17.52.020 **Display of registered numbers for vehicles other than motor vehicles.**

17.52.040A **Motor vehicle license tax.**

17.52.040B **License fees for motor vehicles and trailers.**

17.52.050 **Motor vehicle license—Fees prorated.**

17.52.060 **Motor vehicle license—Application.**

17.52.070 **State registration number plate—Required.**

17.52.080 **State registration number plate—Counterfeiting.**

17.52.090 **Motor vehicle license emblem—Issuance—Specifications.**

17.52.100 **Motor vehicle license emblem—Display.**

17.52.110 Motor vehicle license emblem—Use of stolen emblem.

17.52.120 Motor vehicle license emblem—Not affixed—Penalty.

17.52.130 Motor vehicle license emblem—Destruction upon sale or transfer of motor vehicle.

17.52.140 Motor vehicle license emblem—Nontransferable.

17.52.150 Motor vehicle license emblem—New—Issuance.

17.52.160 Motor vehicle license emblem—New—Cost.

17.52.170 Counterfeiting emblems and plates.

17.52.180 Motorcycle licenses.

17.52.190 Exception to Sections 17.52.090—17.52.180.

17.52.200 Dealer plates—Application.

17.52.210 Dealer plates—Issuance.

17.52.220 Motor vehicle license violation notices—Issuance.

17.52.230 Motor vehicle license violation notices—Contents.

17.52.240 Motor vehicle license violation notices—Fines.

17.52.250 Motor vehicle license violation notices—Penalty for violation.

17.52.260 Reserved.

17.52.270 Operation of motor vehicle without proper license prohibited—Motorcycles special license.

17.52.280 Exemptions from license law.

17.52.285 Driving while license or driving privilege is canceled, suspended or revoked.

17.52.290 State vehicle license plates required.

17.52.300 Method of displaying license plates.

17.52.310 State motor vehicle safety inspection required.

17.52.320 Unauthorized plates, tags, stickers, signs.

17.52.330 Loads of cargo on motor vehicles.

17.52.340 Commercial motor vehicles licensed for 12,000 pounds or less—Owner's name displayed—When.

17.52.350 Colors of various lamps—Restriction of red lights.

17.52.360 Penalty for violation.

17.52.020 Display of registered numbers for vehicles other than motor vehicles.

A. There shall be kept in a conspicuous place on every vehicle mentioned in this chapter, the registered number of such vehicle, so that it can be read easily from the sidewalk. Such numbers shall be in plain, distinct and legible figures, each plate to be not less than one, two or three inches in width, and placed on each vehicle in the following manner:

1. On drays and carts, the number shall be cast on metallic plates and placed on the outer side of the right shaft three inches in front of the body or bed of the cart or the dray;

2. On wagons, the number shall be cast on metallic plates and placed on the hind axle, or, where a body is used on such wagons, such numbers shall be placed on the right outer side thereof;

3. On baggage wagons and furniture cars, the number shall be cast or painted on metallic plates and placed on the right outer side of the body;

4. On hackney carriages and cabs that occupy stands, the number shall be painted on the outer glass of the lamps in red color not less than two inches in length, and on omnibuses, the number shall be placed on some conspicuous place on the right outer side of the body thereof, so that it can be easily read from the sidewalk; and

5. On private carriages, barouches and buggies, and on vehicles kept by livery stables for private orders, the numbers shall be cast or painted on neat metallic plates and placed upon such vehicles upon the spring bar, footboard or rear end of such vehicles, or owners of vehicles so desiring it may place the number plate on the outer side of the trace of the off horse, not more than ten inches from the collar of the horse, the same to be kept conspicuously to view.

B. Painting or covering over the plates, or placing the plate upon any other vehicle than the one for which the same was issued, except as hereinafter provided, shall be deemed a misdemeanor, and, upon conviction, the owner of the vehicle shall be fined as provided in Chapter 1.12. A copy of this section shall be furnished by the License Collector to each and every person taking out a license under the provisions of this chapter. The owner of more than one vehicle belonging to either class aforesaid and who shall use but one of such vehicles at any one time upon the streets of the City,

and who shall have complied with the provisions of this chapter, and in accordance therewith paid his license under such classification, shall be permitted to place the number of such license upon the harness of the horse intended to be used in connection with such vehicle, and a registered number of a higher grade may be used on or for a vehicle taxed for a less amount by the same person; provided, that all vehicles kept at hotels for the use of hotel patrons shall be exempt from the provisions of this section, and all vehicles belonging to the City, or claimed as exempt from license by reason of being in the service of the City, shall have the word "City" painted on both sides of the outside of the bed or body of vehicle. (1948 C., Ch. 42, § 46; 1960 C., § 615.020; 1994 C., § 17.52.020.)

17.52.040A Motor vehicle license tax.

A. At the first primary, general or special election held throughout the City following the effective date of this chapter, there shall be submitted to the qualified voters the following proposition:

Shall a motor vehicle license tax be levied and collected from the owners of motor vehicles residing in the City of St. Louis, at the rates of eight dollars per year per passenger car, ten dollars per year per truck, and six dollars per year per motorcycle, such tax being payable in advance on or before December 31 of each year for the succeeding year and calculated on the basis of vehicles owned as of January 1 of the year in which such tax is billed, instead of the present City motor vehicle license ("sticker") taxes?

Yes ____

No ____

B. The qualified voters may, at such election, vote a ballot in substantially the following form:

Shall a motor vehicle license tax be levied and collected from the owners of motor vehicles residing in the City of St. Louis, at the rates of eight dollars per year per passenger car, ten dollars per year per truck, and six dollars per year per motorcycle, such tax being payable in advance on or before December 31 of each year for the succeeding year and calculated on the basis of vehicles owned as of January 1 of the year in which such tax is billed, instead of the present City motor vehicle license ("sticker") taxes?

Yes ____

No ____

C. The Board of Election Commissioners of the City of St. Louis shall provide the ballots or voting machines, or both, and conduct the election at which the proposition set forth in Subsection B of this section is submitted and shall ascertain the results thereof according to the laws regulating such elections. Upon approval of this section it shall be published once in the City Journal. Proof of publication of this section shall be made by affidavit of the City Register and such affidavit shall be filed in the office of the City Register and a copy of such publication shall be attached thereto.

D. If such proposition shall receive in its favor the votes of the majority of the voters voting thereon, the motor vehicle license tax, at the rates of eight dollars per year per passenger car, ten dollars per year per truck, and six dollars per year per motorcycle, shall take effect on the first day of the following October and be due and payable for the succeeding year on or before December 31 of the year in which the election thereon is held, if such election is held not later than the Tuesday following the first Monday in August; if such election is held later than the Tuesday following the first Monday in August, such motor vehicle license tax at such rates shall take effect on the first day of October of the year following the year in which such election is held and be due and payable for the succeeding year on or before December 31 of the year in which such tax takes effect. In each year after the year in which such tax takes effect, such tax shall be due and payable for the succeeding year on or before December 31.

E. The motor vehicle license tax hereunder for each year shall be included as a charge on the personal property tax bills for the preceding year. Payments of the motor vehicle license tax shall be made with and in the same payment as personal property taxes for the preceding year, and shall be collected by the Collector of Revenue. Billing for and collection of the motor vehicle license tax hereunder shall be done in a manner consistent with the provisions of RSMo 301.340 (Supp. 1985) and this section. The Collector of Revenue shall collect delinquent receipts of motor vehicle license taxes hereunder, and penalties thereon, in the same manner and form as provided by law for the collection of delinquent ad valorem property taxes.

F. The motor vehicle license tax payable hereunder by a vehicle owner shall be calculated on the basis of the motor vehicles owned by such owner as of January 1 of the year in which such tax is billed.

G. The Collector of Revenue shall not issue a receipt for payment of personal property taxes until all motor vehicle license taxes hereunder due and owing by the taxpayer have been paid.

H. It is a violation of this section to fail to pay all or any part of any motor vehicle license tax due and owed hereunder by December 31 of the year in which such tax is billed.

I. Upon the effective date of the motor vehicle license tax under Subsection D of this section hereof, and thereafter for so long as such tax remains in effect at the rates specified in Subsection D of this section, the following ordinances which are presently codified in whole or part in the St. Louis Revised Code, 1980, under the section numbers indicated in parentheses, shall not be applied, administered, or enforced: Ordinance 39570 (§ 17.52.040); Ordinance 29898 (§ 17.52.050); Ordinance 40441 (§ 17.52.060); Ordinance 40457 (§§ 17.52.080, 17.52.090, 17.52.130, 17.52.140, 17.52.150, 17.52.160, 17.52.170, 17.52.180, and 17.52.190); Ordinance 52099 (§ 17.52.100); Ordinance 55358 (§§ 17.52.110 and 17.52.260); Ordinance 57729 (§ 17.52.120); and Ordinance 55408 (§§ 17.52.220, 17.52.230, 17.52.240 and 17.52.250).

J. On and after the effective date of the motor vehicle license tax under Subsection D of this section, no person subject to such tax and delinquent in any payment thereof shall drive, operate or park upon the streets of the City, or cause to be driven, operated or parked upon the streets of the City, any motor vehicle owned solely or partially by such person. As used in this subsection and in Subsection L of this section, "person" means individuals, corporations, partnerships and any legal entity of any kind.

K. On and after the effective date of the motor vehicle license tax under Subsection D, Subsections D, E, H and J of this section shall not apply to manufacturers or dealers in motor vehicles, duly licensed by the City, except as to vehicles used by such manufacturers, dealers or their employees for private purposes.

L. On and after the effective date of the motor vehicle license tax under Subsection D of this section, and in addition to any penalty for late payment of such tax hereunder, any person who violates any provision of this section, or of Chapter 17.52 of the St. Louis Revised Code, 1980, as amended hereby, shall upon conviction thereof be punished by a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment.

M. The Collector of Revenue is authorized and directed to promulgate regulations consistent with the provisions of RSMo 301.340 (Supp. 1985) and this section as necessary for the administration of this section.

N. The compensation payable to the Collector of Revenue for collecting the motor vehicle license tax hereunder shall be that commission allowed by RSMo 82.650 (1978).

O. The several subsections and parts of sections or portions hereof shall be severable. In the event any part, subsection, or portion of this section is found by a court of competent jurisdiction to be void, invalid, or unconstitutional, the remaining parts, subsections or portions of this section are intended to have legal effect and be valid unless the court finds the valid parts, subsections or portions hereof are so essentially and inseparably connected with, and so dependent upon the void part, subsection or portion that it cannot be presumed that the Board of Aldermen would have enacted the valid parts, subsections or portions without the void matter or unless the court finds that the valid parts, subsections or portions, standing alone, are so incomplete as to be incapable of being executed in accordance with the legislative intent.

P. This section shall not affect or impair any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before the effective date of the tax provided for by this section; but every act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes as if the prior law had remained in full force and effect. No offense committed and no liability, penalty or forfeiture either civilly or criminally incurred prior to the effective date of the tax provided for by this section, shall be discharged or affected by this section; but prosecutions and suits for such offenses, liabilities, penalties or forfeitures shall be instituted and proceeded with in all respects as if the tax provided for by this section had not taken effect. (1994 C., § 17.52.040A; Ord. No. 59754, §§ 1—16, 1986.)

Editor's Note:

Ordinance 59754 was approved March 4, 1986.

17.52.040B License fees for motor vehicles and trailers.

There shall be annually levied and collected on all motor vehicles, trailers and semi-trailers, a license fee in accordance with the following schedules:

For motor vehicles other than commercial motor vehicles:

Less than 12 horsepower: $2.50

12 horse power and less than 24 horsepower: $3.50

24 horsepower and less than 36 horsepower: $5.50

36 horsepower and less than 48 horsepower: $7.50

48 horsepower and less than 60 horsepower: $8.50

60 horsepower and less than 72 horsepower: $10.50

72 horsepower and more: $12.50

Motorcycles: $2.00

Motortricycles: $2.50

For commercial motor vehicles having a capacity of:

Less than 2 tons	$3.50
2 tons and less than 5 tons	$6.00
5 tons and less than 6 tons	$9.00
6 tons and less than 7 tons	$10.00
7 tons and less than 8 tons	$12.00
8 tons	$17.00
and for every ton or major fraction thereof in excess of 8 tons, per ton	$5.00

For each trailer there shall be paid a fee equal to one-half of that provided for commercial motor vehicles, and for each semitrailer there shall be paid a fee equal to one-quarter of that provided for commercial motor vehicles, according to the live load capacity of such trailer or semi-trailer. Such license shall be due and payable on the first day of February of each year. (1948 C., Ch. 42, § 48; 1960 C., §§ 615.040, 615.050; 1994 C., § 17.52.040B.)

RSMo:

RSMo 301.260 (2016) Municipally owned vehicles

RSMo 301.340 (2016) Municipal licenses—fees

City Counselor Ops.: 8079, 8887

Cases:

The words "residing in such municipalities" within statute providing that municipalities may by ordinance levy and collect license taxes from motor vehicle owners held to apply to any owner whose truck was regularly engaged in business in such municipality. *City of St. Louis v. Temples,* 149 S.W. 2d 888 (1941).

A license fee for commercial vehicles having a capacity of two tons or less is not an "occupation tax" but a "license tax" on the vehicle. *City of St. Louis v. Temples,* 149 S.W. 2d 888 (1941).

McQuillin:

26.158 et seq. Licensing of vehicles and their drivers

17.52.050 Motor vehicle license—Fees prorated.

If application for a license for a motor vehicle is made during the period beginning on the first day of August and ending on the last day of October, one-half of the annual license fee only shall be levied and collected. If application is made during the period beginning on the first day of November and ending on the last day of January, one-fourth of the annual fee shall be levied and collected. (1948 C., Ch. 42, § 49; 1960 C., § 615.060; 1994 C., § 17.52.050.)

Editor's Note:

See § 17.52.040A, supra.

17.52.060 Motor vehicle license—Application.

It shall be the duty of the License Collector, when application is made to him for the issuance of any license on a motor vehicle, to require such application to be made in writing, in duplicate, and to contain the name and address of the owner of the motor vehicle, the trade name of such motor vehicle and its body style, year of manufacture and its horsepower, and, if such motor vehicle be a truck, its tonnage. The originals of such application shall be retained by the License Collector, for his records, and the duplicate copies thereof shall be transmitted daily by the License Collector to the Assessor of the City. It shall be the further duty of the License Collector, upon receiving such application, to satisfy himself that such application covers the kind of motor vehicle for which application is made, and to this end he shall require the applicant for such license to present to him, at the time of filing such application for such license, the ownership certificate, describing the motor vehicle to be licensed, as issued by the Secretary of State; or, in lieu thereof, such other evidence as is sufficient to satisfy the License Collector that such application properly and accurately covers the kind of motor vehicle for which a license is intended to be issued. It shall be the further duty of the License Collector, when the annual tax on any vehicle mentioned in this chapter has been paid, to register the same, and

give the party applying for the license the number to be put thereon. (1948 C., Ch. 42, § 50; 1960 C., § 615.070; 1994 C., § 17.52.060.) RSMo 304 See § 17.52.040A, supra.

17.52.070 State registration number plate—Required.

No person shall drive, operate or park any motor vehicle upon the public streets, alleys or other public commons of the City, or cause any motor vehicle to be driven, operated or parked upon the public streets, alleys or other public commons of the City, unless a current state registration number plate is affixed thereon in the manner provided by law. (1948 C., Ch. 42, § 51; 1960 C., § 615.080; 1994 C., § 17.52.070; Ord. No. 55230, § 1(part), 1969.)

17.52.080 State registration number plate—Counterfeiting.

A. No person shall make a replica, facsimile or counterfeit of any number plate or temporary number tag issued by the State of Missouri or any other state, nor shall any person erase, change or alter the number on any such plate or temporary number tag or knowingly use or display on any motor vehicle a replica, facsimile or counterfeit number plate or temporary number tag or any plate or temporary number tag on which the number has been erased, changed or altered.

B. Any person found to be in violation of Subsection A of this section shall be assessed a fine of not less than two hundred and fifty dollars ($250.00) or a term of imprisonment of not less than ninety (90) days or both a fine and a term of imprisonment.

C. Any vehicle displaying a replica, facsimile or counterfeit of any number plate or temporary number tag or a plate or temporary number tag which has been erased, changed or altered in violation of Subsection A of this section shall be subject to towing by the St. Louis Metropolitan Police Department. The police officer shall provide for the towing of the vehicle to a facility controlled by the City or its agents. The vehicle shall be held until the owner of such vehicle provides proof of a valid title registration and a certificate of financial responsibility for such vehicle. In addition the owner shall be liable for the scheduled fees for the towing and storage of the vehicle. When the vehicle is towed, the police officer shall notify the person who is found to be in control of the vehicle at the time of the alleged violation, if there is such a person, of the fact of the towing and of the vehicle owner's right to appeal the towing under the provisions of this section.

Any person, firm or corporation or other legal entity aggrieved by any decision of the Metropolitan Police Department to remove a vehicle pursuant to the provisions of this section may request a hearing before the Director of Streets or his designee. Such hearings shall be conducted as soon as possible after the removal has occurred.

Any person, firm or corporation or other legal entity aggrieved by any decision of the Director of Streets may appeal such decision to the Board of Public Service within seven (7) days after receiving a written notice of such decision by filing a written appeal with the Secretary of the Board of Public Service. A hearing officer appointed by the Board of Public Service shall, within fourteen (14) days after receiving notice of such appeal, hear the appeal and thereafter render a decision affirming, modifying or reversing the decision of the Director of Streets and to such end shall possess all the powers on appeal granted the Director of Streets under the provisions of this chapter. Such decision shall be subject to the procedures and review provided by RSMo Ch. 536 (1978), as amended. (1948 C., Ch. 42, § 52; 1960 C., § 615.090; 1994 C., § 17.52.080; Ord. No. 67074, § 1, 2006; Ord. No. 64710, § 1, 1999.)

Editor's Note:

See § 17.52.040A, supra.

17.52.090 Motor vehicle license emblem—Issuance—Specifications.

Upon the issuance of a license for a motor vehicle, other than a motorcycle, the License Collector shall deliver to the applicant a transparent sticker license emblem, approximately three and one-half inches in size which shall bear the words, "motor vehicle tax," and the numerals designating the year for which the license is issued a reproduction of the corporate seal of the City and a number identical with the number of such license. This emblem shall be impervious to the weather, and its border shall be of adhesive material of such strength and composition that it cannot be removed without being mutilated or destroyed. The predominant background color of this emblem shall be changed annually. (1948 C., Ch. 42, § 54; 1960 C., § 615.110; 1994 C., § 17.52.090.)

City Counselor Ops.: 9643

Editor's Note:

See § 17.52.040A, supra.

17.52.100 Motor vehicle license emblem—Display.

The applicant shall affix the emblem to the lower right-hand corner of the inside of the glass part of the windshield of the motor vehicle for which the same was issued, approximately one inch from the right lower section of the frame of the windshield. No person shall drive, operate, or park, upon the streets of the City, cause to be driven, operated, or parked, upon the streets of the City, any motor vehicle owned solely or partially by a resident of the City, or any motor vehicle owned solely or partially by any business establishment located within the City, without the emblem being affixed to the windshield in the manner herein prescribed. Motorcycles shall be excepted from the requirements of this section. (1948 C., Ch. 42, § 55; 1960 C., § 615.120; 1994 C., § 17.52.100; Ord. No. 52099, § 1, 1963.)

City Counselor Ops.: 8887, 8898, 9319, 9643

Editor's Note:

See § 17.52.040A, supra.

17.52.110 Motor vehicle license emblem—Use of stolen emblem.

No person shall use or have in his possession any City vehicle license sticker not lawfully procured from the License Collector, nor use or have in his possession a stolen or counterfeit City vehicle license sticker. (1948 C., Ch. 42, § 53; 1960 C., § 615.100; 1994 C., § 17.52.110; Ord. No. 55358, § 1, 1969.)

Editor's Note:

See § 17.52.040A. supra.

17.52.120 Motor vehicle license emblem—Not affixed—Penalty.

A. Whenever any vehicle required to display the motor vehicle license emblem required under Section 17.52.090, in the manner described under Section 17.52.020, shall be found parked on any public highway, street, alley or other public place without such emblem affixed according to law, the police, in addition to and not by way of limitation of the authority of the License Collector to issue motor vehicle license violation notices under Sections 17.52.220 through 17.52.250, shall likewise be empowered to issue such notices of violations which shall also conform to the provisions set forth in Sections 17.52.220 and 17.52.230.

B. Violators given notices by the police under the aforesaid authority may elect to satisfy such offense as provided under Section 17.52.240(A); otherwise such violators shall be proceeded against through a court summons or arrest.

C. Whenever any vehicle while being driven or operated on any public highway, street or alley without an emblem affixed in the manner described under Sections 17.52.020 and 17.52.040, the police shall proceed against such violators through a court summons or arrest.

D. Any person who wrongfully violates the provisions of this section shall be guilty of a municipal misdemeanor and upon conviction be punished by a fine of not less than twenty-five ($25.00) dollars or imprisoned for not more than thirty (30) days, or by both such fine and imprisonment. (1960 C., § 615.222; 1994 C., § 17.52.120; Ord. No. 57729, § 1, 1979.)

Editor's Note:

See § 17.52.040A, supra.

17.52.130 Motor vehicle license emblem—Destruction upon sale or transfer of motor vehicle.

In the event the owner of any motor vehicle, except a motorcycle, shall sell or dispose of the vehicle, to the windshield of which has been affixed a license emblem, the owner shall destroy and remove the emblem before delivering or disposing of the vehicle. (1948 C, Ch. 42, § 56; 1960 C., § 615.130; 1994 C., § 17.52.130.)

Editor's Note:

See § 17.52.040A, supra.

17.52.140 Motor vehicle license emblem—Nontransferable.

No motor vehicle license emblem shall be transferred to any other person, nor shall it be used for any vehicle other than the one for which it was issued. (1948 C., Ch. 42, § 57; 1960 C., § 615.140; 1994 C., § 17.52.140.)

Editor's Note:

See § 17.52.040A, supra.

17.52.150 Motor vehicle license emblem—New—Issuance.

Whenever a license emblem has been lost or destroyed, or the owner shall sell or dispose of such vehicle and shall have destroyed the license emblem and desires to procure a new license emblem for the same or another vehicle, he shall deliver to the License Collector, under oath, satisfactory proof of its loss or destruction, and he shall produce his license receipt. Upon receipt of such proof, the License Collector shall issue

and deliver to the applicant a new license emblem. (1948 C., Ch. 42, § 58; 1960 C., § 615.150; 1994 C., § 17.52.150.)

City Counselor Ops.: 9643

Editor's Note:

See § 17.52.040A, supra.

17.52.160 Motor vehicle license emblem—New—Cost.

The applicant shall pay the sum of one dollar for each new license emblem issued. In the event such new license emblem is to be issued for a motor vehicle of horsepower requiring a higher rate than the one for which the original emblem was issued, the owner shall be required to pay for the additional horsepower. (1948 C., Ch. 42, § 59; 1960 C., § 615.160; 1994 C., § 17.52.160.)

Editor's Note:

See § 17.52.040A. supra.

17.52.170 Counterfeiting emblems and plates.

No person shall make a replica, facsimile or counterfeit of any plate, tag or emblem issued by any officer of the City, evidencing the issuance of any license for a vehicle; nor shall anyone erase or change the numbers on any license plate, tag or emblem, or display on any vehicle any replica, facsimile, counterfeit, changed or altered license tag, plate or emblem while the vehicle is on the streets of the City. (1948 C., Ch. 42, § 60; 1960 C., § 615.170; 1994 C., § 17.52.170.)

Editor's Note:

See § 17.52.040A, supra.

17.52.180 Motorcycle licenses.

Upon the issuance of a license for a motorcycle, the License Collector shall deliver to the applicant, without charge, a metal license plate, not to exceed three inches in diameter, having thereon the number of the plate, the word "St. Louis," and the year for which the license is issued. No person shall drive or operate, or cause to be driven or operated, any motorcycle upon the streets of the City without having displayed on the front of such motorcycle the license plates provided for herein. (1948 C., Ch. 42, § 61; 1960 C., § 615.180; 1994 C., § 17.52.180.)

Editor's Note:

See § 17.52.040A, supra.

17.52.190 Exception to Sections 17.52.090—17.52.180.

Sections 17.52.090 through 17.52.180 shall not apply to manufacturers or dealers in motor vehicles, duly licensed by the City, except as to vehicles used by such manufacturers, dealers or their employees for private purposes. (1948 C., Ch. 42, § 62; 1960 C., § 615.190; 1994 C., § 17.52.190.)

Editor's Note:

See § 17.52.040A, supra.

17.52.200 Dealer plates—Application.

Every person, agent or subagent manufacturing, dealing in, selling or offering for sale, motor vehicles, shall make annually a verified application to the License Collector upon a blank to be furnished by such License Collector, for a general distinctive number for all motor vehicles owned or controlled by such manufacturer or dealer, such application to contain:

A. A brief description of each style or type of motor vehicle manufactured or dealt in by such dealer; and

B. The name and business address of such dealer. (1948 C., Ch. 42, § 63; 1960 C., § 615.200; 1994 C., § 17.52.200.)

17.52.210 Dealer plates—Issuance.

On payment to the License Collector of a registration fee of five dollars, such application shall be filed and registered in the office of the License Collector, who shall thereupon assign and issue to such dealer a general distinctive number and, without expense to the applicant, issue and deliver to the applicant, a certificate of registration in such form as the City Register shall prescribe, together with two metallic plates with a number thereon corresponding to the number of such certificate of registration. Such plates shall bear the number thereon in Arabic numerals, together with the letter "D," the words "St. Louis," and the year for which the same are issued. The form of such plates shall be designated by the City Register, and they shall be of such size as to admit of being easily carried upon the person of the operator of every motor vehicle or the manufacturer or dealer when the same is operated or driven in the public highways of the City, and they shall be exhibited by such operator whenever required by any officer of the Police Department.

Such dealer may obtain as many duplicates of such number plates as may be desired upon payment to the License Collector of two dollars and fifty cents for each duplicate. (1948 C., Ch. 42, § 64; 1960 C., § 615.210; 1994 C., § 17.52.210.)

17.52.220 Motor vehicle license violation notices—Issuance.

The License Collector of the City and his designated employees are hereby empowered, upon observation of circumstances which cause them to reasonably believe a violation has occurred, to issue motor vehicle license violation notices to persons suspected of having failed to lawfully procure and affix a City motor vehicle license to a vehicle, and to persons operating a motor vehicle which is not lawfully licensed or does not have a lawfully issued license properly displayed. Such notices shall be delivered to the violator personally, if present, or securely affixed to the windshield of the vehicle on the driver's side. (1960 C., § 615.220(1); 1994 C., § 17.52.220; Ord. No. 55408, § 1(part), 1969.)

Editor's Note:

See § 17.52.040A, supra.

17.52.230 Motor vehicle license violation notices—Contents.

Motor vehicle license violation notices shall recite thereon the identity of the vehicle by make, year, model and State of Missouri motor vehicle registration number (viz. license plate number), the time of day, date and location of the vehicle at issuance and shall identify the operator if applicable. The person delivering or affixing such notice shall sign his name in a legible manner with an indication of his official employment. The Collector's employees are empowered to secure the identity of an operator by demanding to inspect his Missouri state operator's or chauffeur's license, and upon such demand every operator shall deliver his or her operator's or chauffeur's license. Such notice shall be prepared in sufficient copies as may be determined by the License Collector as necessary for administrative processing and bear an official serial number. (1960 C., § 615.220(2); 1994 C., § 17.52.230; Ord. No. 55408, § 1(part), 1969.)

Editor's Note:

See § 17.52.040A. supra.

17.52.240 Motor vehicle license violation notices—Fines.

Violators given notice may elect to satisfy such offense in the following manner:

A. Owners shall within five (5) days secure a proper City motor vehicle license and pay a penalty of ten dollars ($10.00) at the Traffic Violation Bureau;

B. All others shall within five (5) days pay a penalty of ten dollars ($10.00) at the Traffic Violation Bureau.

Violators electing to not satisfy such violations in this section shall be proceeded against through a court summons or arrest. (1960 C., § 615.220(3); 1994 C., § 17.52.240; Ord. No. 55408, § 1(part), 1969.)

Editor's Note:

See § 17.52.040A, supra.

17.52.250 Motor vehicle license violation notices—Penalty for violation.

Any person who wrongfully violates the provisions of Sections 17.52.220 through 17.52.240 shall be guilty of a municipal misdemeanor and upon trial and conviction be punished by a fine of not less than twenty-five ($25.00) dollars or imprisoned for not more than thirty (30) days, or by both such fine and imprisonment. (1960 C., § 615.220(4); 1994 C., § 17.52.250; Ord. No. 55408, § 1(part), 1969.)

Editor's Note:

See § 17.52.040A, supra.

17.52.260 Reserved.

Editor's Note:

Ord. No. 70511, § 2, adopted February 21, 2017, repealed former § 17.52.260, which pertained to penalty for violation, and derived from Ord. No. 55358 of 1969.

17.52.270 Operation of motor vehicle without proper license prohibited—Motorcycles special license.

It shall be unlawful for any person to:

A. Operate any motor vehicle while a resident of the State of Missouri, as a chauffeur or nonchauffeur, upon any street or highway of this City, unless such person has procured a valid driver's license of the type and class as required by the State of Missouri for the type of vehicle operation activity involved. It shall also be unlawful for any person who operates a commercial motor vehicle to have more than one driver's license.

B. Operate any motor vehicle while a nonresident of the State of Missouri, upon any street or highway of this City, unless such nonresident has on his/her person a valid and proper operator or class license required by his/her home resident state or country, for the type of vehicle being operated, and the particular vehicle activity involved, unless such person is expressly exempted by the provisions of Section 17.52.280. It shall also be unlawful for any person who operates a commercial motor vehicle to have more than one driver's license.

C. Operate a motorcycle or motor-driven cycle upon any street or highway of this City as a resident of

the State of Missouri, unless such person has procured the proper class license or permit required by this operation. In the case of a nonresident of this state, said nonresident shall have on his/her person a valid and proper operator or class license required by his/her home resident state or country, for the type of vehicle being operated, unless such person is expressly exempted by the provisions of Section 17.52.280.

D. Authorize or knowingly permit a motorcycle or motor-driven cycle owned by or under his/her control to be operated upon any street or highway of this City by any person who does not hold the proper class or type of license for the operation of a motorcycle or motor-driven cycle, or has been issued a valid instruction permit therefor, unless the operator is expressly exempted by the provisions of Section 17.52.280.

E. Display or represent as one's own, or operate a motor vehicle with, an instruction permit or chauffeur's or operator's license issued to another person.

F. Display or cause or permit to be displayed or have in his possession any canceled, revoked, suspended, fictitious or fraudulently altered instruction permit, operator's or chauffeur's license.

G. Lend his instruction permit, operator's or chauffeur's license to any other person or knowingly permit the unlawful use thereof by another.

H. Operate a motor vehicle in any manner in violation of the restrictions imposed in a restricted license.

I. Use a false or fictitious name in any application for an instruction permit, operator's or chauffeur's license or any renewal or application for a duplicate thereof, or to otherwise commit a fraud in any such application.

J. Refuse to write his name and address in the presence of a police officer, court official or any other duly authorized person, in order that the identity of the licensee may be determined.

K. Fail to carry his instruction permit, operator's or chauffeur's license while operating a vehicle and to display instruction permit or said license upon demand of any police officer, court official or any other duly authorized person for inspection, when demand is made therefor. Failure to exhibit his instruction permit or license as aforesaid shall be presumptive evidence that said person is not a duly licensed operator or chauffeur.

L. Employ as a chauffeur any person without first ascertaining that such person has complied with or is not in violation of the provisions of Sections 17.52.270 through 17.52.360.

M. Authorize, order or consent to the operation of any motor vehicle owned by him or under his control by any person, when he has knowledge that such person has no legal right to do so.

N. Fail or refuse to surrender to a proper authority upon its lawful demand any instruction permit, operator's or chauffeur's license which has been suspended, revoked or cancelled. (1994 C., § 17.52.270; Ord. No. 62068, § 1, 1990; Ord. No. 58900, § 1, 1983.)

17.52.280 Exemptions from license law.

The following persons are exempt from the operator's and chauffeur's license requirements of this article:

A. All persons while driving or operating any road machine, farm tractor, or implement of husbandry temporarily operated or moved on a street or highway.

B. A nonresident who is at least sixteen years of age, and who has in his immediate possession a valid operator's license issued to him in his home state or country may operate a motor vehicle in this City only as an operator.

C. A nonresident who is at least sixteen years of age and has in his possession a valid operator's license issued to him in his home state or country may operate a motorcycle or motor-driven cycle in this City, without being qualified by examination to operate a motorcycle or motor-driven cycle, provided such qualification is not required by his home state or country.

D. A nonresident who is at least eighteen years of age, and who has in his immediate possession a valid chauffeur's license issued to him in his home state or country may operate a motor vehicle in this City, either as an operator or chauffeur.

E. A nonresident who is at least eighteen years of age, whose home state or country does not require the licensing of operators may operate a motor vehicle as an operator only, in this City, for a period of not more than sixty days in any calendar year, if the motor vehicle so operated is duly registered in the home state or country of such nonresident.

F. Any person holding a valid operator's license shall not be required to procure a chauffeur's license while operating, for official use, any motor vehicle owned by the United States, the state, or by any municipality

or political subdivision in this state, except that any person operating a school bus carrying more than ten (10) pupils shall be required to procure a chauffeur's license. (1994 C., § 17.52.280; Ord. No. 58900, § 2, 1983.)

17.52.285 Driving while license or driving privilege is canceled, suspended or revoked.

No person shall operate any motor vehicle on a street, alley, roadway, highway or parking lot open to the public while that person's driver's license or driving privilege has been canceled, suspended or revoked by the State of Missouri, whether that person's license and driving privilege is that of a resident or a nonresident, with knowledge or constructive knowledge of the fact his driving privilege has been canceled, suspended or revoked.

Any person who actually knows or who was mailed an official notice, delivered to his last address on file with the Director of Revenue of the State of Missouri, that his/her driver's license or driving privilege has been canceled, suspended or revoked by the Director of Revenue of the State of Missouri shall be deemed to have knowledge or constructive knowledge that his/her driver's license or driving privilege has been canceled, suspended or revoked for purposes of this section.

Every person who pleads guilty to or is found guilty for the first time of a violation of this section shall be punished by a fine of not less than $200.00 nor more than $500.00 and/or imprisonment for a term not to exceed 90 days. Every person who pleads guilty to or is found guilty for a second or subsequent violation of this section shall be punished by a fine of not less than $500.00 and/or imprisonment for a term not to exceed 90 days. A judge may suspend the execution of the jail term but not the fine. A judge may not enter a "suspended imposition" of any sentence. (1994 C., § 17.52.285; Ord. No. 67592, §§ 1—3, 2007.)

17.52.290 State vehicle license plates required.

No person shall operate or park any motor vehicle or trailer upon any street or highway of this City, unless such motor vehicle or trailer has properly displayed a valid and proper license plate or plates or temporary permit required by Department of Revenue issued to the lawful owner of the vehicle by the Department of Revenue of the state, except that any person who is a nonresident of the state may operate or park any motor vehicle or trailer upon any street or highway of this City, provided the motor vehicle or trailer has been duly registered for the current year in the state, country, or other place of which the owner is a resident, provided that at all times such motor vehicle or trailer is being operated or parked upon the streets or highways of this City, the valid license plate or plates or temporary permit is properly displayed on such vehicle or trailer.

A. A person who is a resident of the State of Missouri shall not operate or park any motor vehicle or trailer upon any street or highway of this City, unless such motor vehicle or trailer has a valid and proper license plate or plates required by the Missouri Department of Revenue for the type of vehicle involved, lawfully issued to the vehicle displayed thereon, and displayed in the manner required by law.

B. A person who is a nonresident of the State of Missouri shall not operate or park any motor vehicle or trailer upon any street or highway of this City, unless such motor vehicle or trailer has the valid and proper license plate or places required by the resident state or country of such nonresident, for the vehicle type involved, lawfully issued to the vehicle displayed thereon, and displayed on the vehicle in the manner required by law. In the case of commercial motor vehicles, they shall be properly licensed for the total gross vehicle weight of the vehicle or combination of motor vehicles.

C. Vehicle(s) shall be exempt from Subsections A and B providing a valid temporary permit authorized by the Department of Revenue is being displayed properly and lawfully in the case of Missouri residents; or in the case of nonresidents, a valid temporary permit is being lawfully displayed for the vehicle involved in the manner required by the laws of such state. (1994 C., § 17.52.290; Ord. No. 62053, § 1, 1990; Ord. No. 58900, § 3, 1983.)

17.52.300 Method of displaying license plates.

The required license plate(s) or temporary permit shall be fastened to a vehicle in such a manner as to be entirely unobscured, unobstructed, all parts thereof plainly visible and kept reasonably clean, fastened so that the letters or numerals are right side up and the plates do not swing. On all motor vehicles, one plate shall be displayed on the front and the other on the rear of such motor vehicle, not less than eight (8) or more than forty-eight (48) inches above the ground, except that on trailers, motorcycles and motor-driven cycles one plate shall be so displayed on the rear thereof. At nighttime, the rear plate shall be illuminated with a white light so as to be clearly visible from a distance of

fifty (50) feet to the rear. (1994 C., § 17.52.300; Ord. No. 58900, § 4, 1983.)

17.52.310 State motor vehicle safety inspection required.

No person shall operate or park any motor vehicle or trailer upon any street or highway of this City, unless such motor vehicle or trailer has properly displayed a valid certificate of inspection issued by the state, except that any person who is a nonresident of the state may operate or park any motor vehicle or trailer upon any street or highway of this City, provided the motor vehicle or trailer has been duly registered for the current year in the state, country, or other place of which the owner is a resident, provided that at all times such motor vehicle or trailer is being operated or parked upon the streets or highways of this City, the valid license plate or plates or temporary permit is properly displayed on such vehicle or trailer. (1994 C., § 17.52.310; Ord. No. 58900, § 5, 1983.)

17.52.320 Unauthorized plates, tags, stickers, signs.

No person shall operate or park any motor vehicle or trailer on any street or highway of this City on which there is displayed a plate, tag, sticker, sign or placard bearing the words "license lost," "license applied for" or words of similar import, as a substitute for a valid license plate or temporary permit. (1994 C., § 17.52.320; Ord. No. 58900, § 6, 1983.)

17.52.330 Loads of cargo on motor vehicles.

A. No vehicle shall be driven or moved on any street or highway unless such vehicle is so constructed or loaded as to prevent any of its load from dropping, sifting, leaking or otherwise escaping therefrom, provided that this section shall not prohibit the necessary spreading of any substance in street or highway maintenance or construction operations.

B. No persons shall operate on any street or highway any vehicle with any load unless said load and covering thereon is securely fastened so as to prevent said covering or load from becoming loose, detached or in any manner a hazard to other users of the street or highway.

C. Any vehicle operating on a street or highway with a load of dirt, sand, gravel, garbage or any other material susceptible to being blown, dropped, spilled, leaked or which otherwise may escape therefrom, shall be covered so as to prevent spillage except that this provision shall not prohibit the necessary spreading of any substance connected with street or highway maintenance, construction, or snow removal.

D. All trucks, truck tractors, semitrailers, and all other trailer combinations, and construction vehicles must, when transporting cargo, be loaded and equipped to prevent the loss, shifting, or falling of the cargo as required by The Federal Motor Carrier Safety Regulations, Part 393, Subpart I, "Protection Against Shifting or Falling Cargo," Code of Federal Regulations, as amended, a copy of which is on file in the office of the City Register and is incorporated herein by reference. (1994 C., § 17.52.330; Ord. No. 60293, § 1, 1987; Ord. No. 58900, § 7, 1983.)

17.52.340 Commercial motor vehicles licensed for 12,000 pounds or less—Owner's name displayed—When.

Each commercial motor vehicle except those licensed under state law based on a gross weight of twelve thousand pounds or less and which are not regularly used for actual commercial purposes shall have displayed thereon in a conspicuous place:

A. The name of the owner;

B. The address from which the motor vehicle is operated or the number issued to a motor carrier by the public service commission;

C. The gross weight for which the vehicle is licensed; and each local commercial vehicle in addition shall have displayed in a conspicuous place the word "local." (1994 C., § 17.52.340; Ord. No. 58900, § 8, 1983.)

17.52.350 Colors of various lamps—Restriction of red lights.

Headlamps, when lighted, shall exhibit lights substantially white in color; auxiliary lamps, cowllamps and spotlamps, when lighted, shall exhibit lights substantially white, yellow or amber in color. No person shall drive or move any vehicle or equipment, except a school bus when used for school purposes or an emergency vehicle upon any street or highway with any lamp or device thereon displaying a red light visible from directly in front thereof. (1994 C., § 17.52.350; Ord. No. 58900, § 9, 1983.)

17.52.360 Penalty for violation.

Violation of any section of this chapter shall, upon conviction, be punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment in the

medium security institution for not more than ninety days, or both such fine and imprisonment. Each day's violation of this section shall constitute a separate offense. (1994 C., § 17.52.360; Ord. No. 58900, § 10, 1983.)

Chapter 17.53

OPERATION OF MOTOR VEHICLES WITHOUT MAINTAINING FINANCIAL RESPONSIBILITY

Sections:

17.53.010	**Operation of vehicle without financial responsibility—Prohibited.**
17.53.020	**Proof of financial responsibility—Required.**
17.53.030	**Financial responsibility—Defined.**
17.53.040	**Proof of financial responsibility.**
17.53.050	**Proof of financial responsibility—To be produced on demand.**
17.53.060	**Failure to exhibit proof.**
17.53.065	**Insurance identification card—Counterfeiting.**
17.53.070	**Reserved.**

17.53.010 Operation of vehicle without financial responsibility—Prohibited.

No person shall operate a motor vehicle registered in this state, whether owned by such operator or by another, upon the streets, alleys or highways of this City, unless such operator, or the owner of the vehicle, maintains financial responsibility which covers the operation of that vehicle by such operator. (1994 C., § 17.53.010; Ord. No. 62779, § 1, 1992.)

17.53.020 Proof of financial responsibility—Required.

No person shall operate a motor vehicle registered in this state, whether owned by such operator or by another, upon the streets, alleys or highways of this City, unless such operator exhibits proof of his or her financial responsibility upon demand of any police officer who lawfully stops such operator while that officer is engaged in the performance of the duties of his or her office. (1994 C., § 17.53.020; Ord. No. 62779, § 2, 1992.)

17.53.030 Financial responsibility—Defined.

For purposes of this section, the term "financial responsibility" shall mean the ability to respond in damages for liability occurring after the effective date of proof of such financial responsibility, arising out of the ownership, maintenance or use of a motor vehicle, in the amount of twenty-five thousand dollars ($25,000.00) because of bodily injury to or death of one person in any one accident, and, subject to said limit for one person, in the amount of fifty thousand dollars ($50,000.00) because of bodily injury to or death of two or more persons in any one accident, and in the amount of ten thousand dollars ($10,000.00) because of injury to or destruction of property of others in any one accident. (1994 C., § 17.53.030; Ord. No. 62779, § 3, 1992.)

17.53.040 Proof of financial responsibility.

Proof of financial responsibility may be shown by any of the following:

A. An insurance identification card issued by a motor vehicle insurer or by the Director of Revenue of the State of Missouri for self-insurance, as provided by RSMo 303.024. A motor vehicle insurance policy, a motor vehicle liability insurance binder, or receipt which contains the name and address of the insurer, the name and address of the named insured, the policy number, the effective dates of the policy and a description by year and make of the vehicle, or at least five digits of the vehicle identification number or the word "Fleet" if the insurance policy covers five or more motor vehicles, shall be satisfactory evidence of insurance in lieu of an insurance identification card.

B. A certificate of the State Treasurer of Missouri of a cash deposit as provided by RSMo 303.240.

C. A surety bond filed with the Director of Revenue of the State of Missouri as provided by RSMo 303.230. (1994 C., § 17.53.040; Ord. No. 62779, § 4, 1992.)

17.53.050 Proof of financial responsibility—To be produced on demand.

Proof of financial responsibility shall be carried at all times in the insured motor vehicle or by the operator of the motor vehicle if the proof of financial responsibility is effective as to the operator rather than to the vehicle. The operator of the motor vehicle shall exhibit the proof of financial responsibility on the demand of any police officer who lawfully stops such operator while that officer is engaged in the performance of the duties of his or her office. (1994 C., § 17.53.050; Ord. No. 62779, § 5, 1992.)

17.53.060 Failure to exhibit proof.

Failure of any person who operates a motor vehicle on the streets, alleys or highways of this City to exhibit proof of financial responsibility on the demand of any police officer who lawfully stops such person shall be prima facie evidence that such person, or that the owner of the vehicle, does not maintain financial responsibility as required by this chapter. It shall be an absolute affirmative defense to a violation charged under Section 17.53.010 that the operator of a motor vehicle, or the owner of the vehicle, did maintain financial responsibility which covered operation of the vehicle by such operator on the date of the violation. It shall be a mitigating circumstance to a violation charged under Section 17.53.010 that the operator, subsequent to the date of the offense, and prior to a trial or guilty plea, obtained and maintained financial responsibility which covers operation of motor vehicles by such operator. (1994 C., § 17.53.060; Ord. No. 62779, § 6, 1992.)

17.53.065 Insurance identification card—Counterfeiting.

A. No person shall make a replica, facsimile or counterfeit of any insurance identification card issued by a motor vehicle insurer or of any proof of financial responsibility certificate issued by the State of Missouri, nor shall any person erase, change or alter any insurance identification card issued by a motor vehicle insurer or any proof of financial responsibility certificate issued by the State of Missouri or knowingly use or display a replica, facsimile or counterfeit insurance identification card issued by a motor vehicle insurer or proof of financial responsibility certificate issued by the State of Missouri.

B. Penalty for Violation. Any person found guilty of a violation of this section shall be punished by a fine of not more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 17.53.065; Ord. No. 64711, §§ 1, 2, 1999.)

17.53.070 Reserved.

Editor's Note:

Ord. No. 70511, § 2, adopted February 21, 2017, repealed former § 17.53.070, which pertained to penalty for violation, and derived from Ord. No. 62779 of 1992. (1994 C., § 17.53.070; Ord. No. 70511, § 2, 2-21-2017; Ord. No. 62779, § 7, 1992.)

Chapter 17.54

REPOSSESSION OF VEHICLES

Sections:

17.54.010 Report.
17.54.020 Violation—Penalty.

17.54.010 Report.

Any person, firm or corporation repossessing a motor vehicle or other vehicle subject to registration under the laws of this state, or any aircraft, watercraft, or machinery or device mounted on wheels, and movable from place to place, hereinafter referred to as repossessed property, from the owner or custodian thereof shall forthwith report that fact to the Chief of Police. Immediate report shall be made by telephone, followed by a postal card or letter containing the name and address of the person so repossessing, the name and address of the person in whose name the repossessed property is registered, the date and time of repossession, the make, model, year, and license number of the repossessed property, or engine number if no license number is available, the location from which the property was repossessed, and any other information required by the Chief of Police. (1960 C., § 658.010; 1994 C., § 17.54.010; Ord. No. 47455, § 1, 1955.)

17.54.020 Violation—Penalty.

Any person, firm or corporation violating any requirement of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined the sum of not less than $5.00 nor more than $500.00. (1994 C., § 17.54.020; Ord. No. 47455, § 2, 1955.)

Chapter 17.55

CRUISING

Sections:

17.55.010 Definitions.
17.55.020 Cruising prohibited.
17.55.030 Temporary designated areas.
17.55.040 Exceptions.
17.55.050 Penalty for violation.

17.55.010 Definitions.

As used in this chapter:

A. "Cruising" is defined as the repetitive driving of any motor vehicle past a police established traffic

control point, on three (3) or more occurrences, within a two (2) hour period on any highway, roadway, roadway within the boundaries of any City park, or alleyway of the City of St. Louis in a manner and under circumstances manifesting a "purpose" of unnecessary, repetitive driving in such area. Among the circumstances which may be considered in determining whether such purpose is manifested are that such person or any other person present in the vehicle attempts to gain the attention of other motorists or pedestrians or engages them in conversation, whether by hailing, arm waving, horn blowing, or another action or device; that such person or any other person present in the vehicle enters or exits the vehicle directly from or to another vehicle driven in or parked in close proximity to the designated area; that such person or any other person present in the vehicle violates state or City traffic regulations or City ordinances; or that such person has declared his or her purpose for driving to be that of cruising. The violator's conduct must be such as to demonstrate a specific intent to cruise. No citation shall be made for a violation of this section unless the police officer first affords an opportunity to explain such conduct; and no person shall be convicted of violating this section if it appears at trial that the explanation given was true and disclosed a lawful purpose, not unnecessary, repetitive driving. Lawful purposes include traveling to a specific destination by a person whose residence address is in the designated area or by a person whose business or employment requires driving in the designated area, and operating an official emergency or police vehicle in the designated area.

B. "Traffic control point" is defined as a clearly identified reference point on a designated street, as determined and marked from time to time by the Police Department for the purpose of enforcing this chapter. (1994 C., § 17.55.010; Ord. No. 68127, § 1, 10-14-2008.)

17.55.020 Cruising prohibited.

It shall be unlawful for any person to engage in cruising. For the purposes of this section, a police officer may issue a citation to any person engaged in cruising, including the passenger(s), whom are sixteen (16) years of age or older. (1994 C., § 17.55.020; Ord. No. 68127, § 2, 10-14-2008.)

17.55.030 Temporary designated areas.

The Chief of Police or his or her designee may establish temporary designated areas where cruising is prohibited where one or more of the following conditions exist or are reasonably anticipated to exist at these locations:

A. Dangerous and continuous traffic congestion during afternoon, evening and night hours.

B. Excessive levels of noise or air pollution caused by traffic congestion.

C. Obstruction of streets, sidewalks or access to parking lots caused by vehicular traffic.

D. Interference with the use of property or conduct of business by vehicular traffic.

E. Obstruction of access to and through the public way for emergency vehicles by vehicular traffic.

F. Loud, disruptive, dangerous or unruly behavior directly related to vehicular traffic.

Prior to establishing a temporary designated area, the Chief of Police or his or her designee shall file a written plan, approved by the Chief of Police, with the district captain or captains responsible for the areas in which the designated area is to be located. A copy of the final plan shall also be provided to the City Director of Public Safety and the Aldermen affected by this designation five (5) days prior to the date on which the designated area takes effect. The plan shall contain the following information:

1. The boundaries of the designated area.

2. The date(s) and times during which the designated area will be in effect.

3. A statement enumerating the problem or problems that require the creation of the designated area.

4. Any instructions given to enforcement officers concerning the designated area.

5. The location of the signs to be posted.

6. The location of traffic control points.

Every temporary designated area shall be posted with sufficient signs to provide notice of the prohibition against cruising seven (7) days prior to establishment of such area. Such signs shall include the times, days and location of the cruising prohibition. These signs shall be of such size and shape as shall be deemed appropriate by the Director of Public Safety. (1994 C., § 17.55.030; Ord. No. 68127, § 3, 10-14-2008.)

17.55.040 Exceptions.

Official emergency vehicles, residents residing within the boundaries of the temporary designated area traveling to a specific destination, taxicabs for hire and other commercial or passenger vehicles being driven for business purposes are exempted from the provisions

of this section. (1994 C., § 17.55.040; Ord. No. 68127, § 4, 10-14-2008.)

17.55.050 Penalty for violation.

Any person who violates the provisions of Section 17.55.020 may first be given a written or verbal warning by the attending police officer and thereafter shall be subject to a fine of not less than $100.00 for a first offense, not less than $200.00 for a second offense committed within a six-month period, and not less than $300.00 and not more than $500.00 for a third or subsequent offense committed within a one-year period. The court may, in lieu of a fine, impose not less than twenty (20) hours of community service for the first offense; not less than sixty (60) hours of community service for the second offense. (1994 C., § 17.55.050; Ord. No. 68127, § 5, 10-14-2008.)

Chapter 17.56

VEHICLE TOWING CODE

Prior history: Ords. 56159, 56910, 57891 and 60505; 1960C. §§ 882.015—882.130

Cases:

Warrant needed for City to tow from residential property. *Bezayiff v. City of St. Louis*, 963 W2d 225 (Mo.App.E.D., 1997).

Sections:

Part I. Abandoned and Illegally Parked Vehicles

17.56.010 Definitions.
17.56.020 Removal—Reasons enumerated.

Part II. Removal

17.56.030 Removal by police.
17.56.040 Removal by the Director of Streets.
17.56.050 Notification by the Director of Streets.
17.56.055 Stolen vehicles—Notification—Removal.
17.56.060 Appeals.
17.56.070 On private land—Notice of removal.
17.56.080 Contracts—Authorized.
17.56.090 Bids.
17.56.100 Contract—Certain requirements.
17.56.110 Term.
17.56.120 On private land—Assessment.
17.56.130 Fee for removal.

Part III. Impoundment and Redemption

17.56.140 Impoundment—Required.
17.56.150 Impoundment—Duration.
17.56.160 Investigation of theft.
17.56.170 Notice to owner upon impoundment.
17.56.180 Fee for storage.
17.56.190 Redemption—Procedure.

Part IV. Final Disposition

17.56.200 Final disposition.
17.56.210 Notice of final disposition.

Part V. Miscellaneous Provisions

17.56.220 Property owner—Responsibility.
17.56.230 Authority of Street Director.
17.56.240 Penalty for violation.

PART I. ABANDONED AND ILLEGALLY PARKED VEHICLES

17.56.010 Definitions.

As used in this chapter:

A. "Abandon" means any act of physically depositing a vehicle or any part or parts of a vehicle, upon any public street, alley or other public right-of-way, or any public land, or upon any private land, and includes any separate act of leaving unattended, any part or parts or residue of any vehicle resulting from the dismantling or dismemberment of any vehicle or elements thereof on any public street, alley or other public right-of-way, or any public land, or upon any private land, whether or not such person dismantling or dismembering placed the vehicle or any part or parts thereof upon such land prior.

B. "Abandoned vehicles and abandoned parts" means all vehicles containing or intended to contain an engine, trailers, whether coupled or not, and any part or parts of vehicles left abandoned on any property.

C. "Emergency removal" means the removal of a vehicles where the vehicle's location or condition poses a real and imminent danger or hazard to the safety of others, menace to traffic, or interferes with the repair, maintenance, cleaning or emergency use of the public right-of-way.

D. "Impoundment area" means any area or areas so designated by the Board of Police Commissioners

with the approval of the Director of Streets or designated by the Director of Streets as a storage area for vehicles or parts removed pursuant to this chapter.

E. "Non-emergency removal" means the removal of a vehicle where the vehicle's location or condition poses no real and imminent danger or hazard to the safety of others nor menace to traffic.

F. "Owner of a parcel of land" means any person, firm, corporation or other legal entity possessed with the lawful right to control any parcel of land, and shall include any person, firm or corporation having a recorded mortgage, lien, or other encumbrance on the parcel of land.

G. "Owner of vehicle" means any owner as recorded in the records of the appropriate state authority, and shall include any holder of a recorded security interest in the vehicle. (1994 C., § 17.56.010; Ord. No. 60935, §§ 1(B)(part), 2, 1988.)

17.56.020 Removal—Reasons enumerated.

A. *Emergency Removal.* Whenever:

1. Any vehicle is so disabled on the street as to constitute a hazard or obstruction to traffic and the person in charge of the vehicle is unable to provide for its timely removal;

2. Any vehicle is parked on the public right-of-way and is directly interfering with the flow of traffic, the maintenance or the emergency use of the public right-of-way;

3. Any vehicle is stopped on the street and the driver is taken into custody by the Police Department and such vehicle would thereby be left unattended on the street.

B. *Non-emergency Removal.* And whenever:

1. Any vehicle is parked in a place where parking is not permitted;

2. Any vehicle is parked in violation of other parking provisions;

3. Any vehicle is parked on the street, roadway or other public place without current state license plates;

4. Any vehicle is within the City limits having four (4) or more previously issued parking violation notices or one (1) or more traffic summonses, that the driver, owner or person in charge of said vehicle has failed to answer or on which he has failed to appear;

5. Any vehicle is continuously parked on a street or alley for more than five days;

6. Any vehicle is parked continuously for five days on any street, alley, roadway or driveway where parking is permitted on property owned by the St. Louis Housing Authority;

7. Any vehicle is parked on private land without the consent and upon the complaint to the Police Department or the Street Department by the owner, lessee or person in charge of such property and such owner, lessee or person in charge agrees to guarantee the payment of all towing and storage charges;

8. Any abandoned vehicle parts or part of a vehicle have been deposited on any street, alley, or other public right-of-way including any street, alley, roadway or driveway owned by the St. Louis Housing Authority, or any other land owned by a public agency within the City limits;

9. Any vehicle on private land does not operate or is in such a condition as to constitute a public safety hazard, whether it does or does not have license plates currently registered to that vehicle, except:

a. A vehicle which is completely enclosed within a building or fenced area so as to not constitute a hazard to children and which is not visible from the public street or other public or private property;

b. A vehicle or part thereof which is standing or parked in a lawful manner on private property in connection with the business of a licensed salvage, scrap or junk dealer;

10. Any abandoned vehicle parts or part of a vehicle is deposited on any private land; such vehicle or vehicle parts or part of a vehicle may be removed subject to provisions of this chapter, codified as Sections 17.56.030 and 17.56.040. The Police Department or Director of Streets through their agents or contractors are vested with the discretion to determine what constitutes an illegally parked vehicle, abandoned vehicle or abandoned vehicle part (of a vehicle) according to this section;

11. Any vehicle is continuously parked on a street or alley in the opposite direction of travel for more than twenty-four (24) hours not including dead-end streets or dead-end alleys. (1994 C., § 17.56.020; Ord. No. 68299, § 1, 2-16-2009; Ord. No. 60935, §§ 1(B)(part), 3, 1988.)

PART II. REMOVAL

17.56.030 Removal by police.

Any vehicle or abandoned parts or part found in violation of Section 17.56.020 may be removed and

conveyed by or under the direction of a member of the Metropolitan Police Department to an impoundment area. (1994 C., § 17.56.030; Ord. No. 60935, §§ 1(B)(part), 4, 1988.)

17.56.040 Removal by the Director of Streets.

Any vehicle or abandoned parts or part in violation of Section 17.56.020, except for vehicles in violation of Section 17.56.020.A.3 or B.4, may be conveyed by or under the direction of the Director of Streets, or his designee, to an impoundment area, pursuant to Sections 17.56.050 and 17.56.060. The Director of Streets shall notify the Police Department immediately after the removal has been completed. (1994 C., § 17.56.040; Ord. No. 60935, §§ 1(B)(part), 5, 1988.)

17.56.050 Notification by the Director of Streets.

Whenever the Director of Streets shall find any condition in violation of Section 17.56.020.B.1 through 8 inclusive and the Police Department is unable to provide for its removal, the Director of Streets shall notify the owner of the vehicle prior to the towing of the vehicle. The notice shall specify the reason for the towing and the owner's right to a hearing pursuant to Section 17.56.060. Service of notice shall be delivered in person or by mail as further outlined within this section.

Whenever the Director of Streets shall find upon any parcel of land a condition existing in violation of Section 17.56.020.B.9 or 10, he shall forthwith order the owner of such parcel of land to abate such condition forthwith by serving a notice of demand on the owner, to remove the same within seven (7) days of receipt of such notice. Should the said owner refuse or fail to abate such condition as set forth in the notice within such seven (7) day period or fail to appeal the order of the Director of Streets within such seven (7) day period, the Director of Streets is hereby authorized and directed to remove or cause to be removed such vehicle or parts from the land at the cost and expense of the owner of the parcel of land. The Director of Streets shall set forth in said notice to the owner a description of the vehicle or part so far as possible. This notice shall further state that such vehicle or part may be sold or destroyed pursuant to Section 17.56.200, if not removed within the seven-day period or properly appealed within the said seven (7) day period, pursuant to Section 17.56.060. This notice shall also state that the owner may be charged for expenses incurred by the City in abatement, pursuant to Section 17.56.120. Notice to the owner of land or any person, firm or corporation or other legal entity lawfully entitled to the possession of land shall be directed to the owner or owners or the possessors of land if known, and if not known then the owner or owners of such land as indicated by the Recorder of Deeds Office. Such notice shall be served in either of the following ways:

A. By causing said notice to be delivered to such owner or person, firm or corporation or legal entity lawfully entitled to the possession of such parcel of land either in the City or elsewhere;

B. By the mailing of such notice or copy thereof enclosed in a sealed envelope, first class postage prepaid, directed to the owner of such parcel of land, either at this place of business or residence in the City or elsewhere.

Notice shall be deemed served twenty-four (24) hours after the mailing of such notice if it is directed to a business or residence address in the City of St. Louis. If the owner or person in control of such property is not a resident of the City and has no business address in the City, such notice shall be deemed served at the end of such period after the mailing thereof as in the ordinary course of delivery would be required for delivery of such notice.

Additionally, notice may also be posted on the vehicle or abandoned parts or part in violation of Section 17.56.020. This notice shall state that the vehicle appears to be in violation of the said section, that the vehicle is subject to removal by the City and that the decision to remove same may be appealed. The notice shall also provide a telephone number to use to receive additional information. (1994 C., § 17.56.050; Ord. No. 60935, §§ 1(B)(part), 6, 1988.)

17.56.055 Stolen vehicles—Notification—Removal.

Except for emergency removal as defined in Section 17.56.020, the Police Department, prior to having a recovered stolen vehicle towed, shall notify the owner of a stolen vehicle within 48 hours of the recovery that the vehicle has been recovered and the location of recovery. If said vehicle is not removed within 48 hours of said notice, the vehicle may be removed pursuant to the procedure as set forth in Chapter 17.56 of the Revised Code of the City of St. Louis. (1994 C., § 17.56.055; Ord. No. 63388, § 1, 1995.)

17.56.060 Appeals.

Any person, firm or corporation or other legal entity aggrieved by any decision of the Metropolitan Police Department to remove a vehicle pursuant to Section 17.56.020 may request a hearing before the Director of Streets or his designee. Hearings regarding emergency removals as defined in Section 17.56.010.C shall be conducted as soon as possible after the removal has occurred. Hearings regarding non-emergency removals as defined by Section 17.56.010.E shall be conducted prior to the date of the intended removal.

Any person, firm or corporation or other legal entity aggrieved by any decision of the Director of Streets to remove any abandoned vehicle or parts or part may appeal such decision to the Board of Public Service within seven (7) days after receiving a written notice as set forth in Section 17.56.050 by filing a written appeal with the Secretary of the Board of Public Service. A hearing officer appointed by the Board of Public Service shall, within fourteen (14) days after receiving notice of such appeal, hear the appeal and thereafter render a decision affirming, modifying or reversing the decision of the Director of Streets and to such end shall possess all the powers on appeal granted the Director of Streets under the provisions of this chapter. Such decision shall be subject to the procedures and review provided by RSMo Ch. 536 (1978), as amended. (1994 C., § 17.56.060; Ord. No. 60935, §§ 1(B)(part), 7, 1988.)

17.56.070 On private land—Notice of removal.

Whenever the Director of Streets clears land pursuant to Section 17.56.050 he, his agents, or contractor shall forthwith post a notice on the parcel of land notifying the owner of each land of the name and address of the place where such vehicle or parts shall be located for a period of ten (10) days. (1994 C., § 17.56.070; Ord. No. 63131, § 1(part), 1994; Ord. No. 62776, § 1(part), 1992; Ord. No. 60935, §§ 1(B)(part), 8, 1988.)

17.56.080 Contracts—Authorized.

The City is authorized to cooperatively act with the Board of Police Commissioners of the Metropolitan Police Department of the City, to jointly engage, subject to appropriation, one or more contractors to perform the respective governmental functions of the Police Department of removal and storage of illegally parked vehicles, stolen and abandoned vehicles, disabled vehicles, and seized vehicles, from the streets, alleys, highways and public places and private property within the City by the Police Department, and by the Director of Streets under certain conditions pursuant to 17.56.040. The City is further authorized to contract with private persons, firms or corporations for the final disposition of vehicles or parts removed pursuant to Chapter 17.56 through the salvage and destruction. Any such contracts of the City shall be in conformity with all applicable Charter and ordinance requirements. (1994 C., § 17.56.080; Ord. No. 60935, §§ 1(B), 9, 1988.)

17.56.090 Bids.

Any such contract shall be let to the highest and best bidder or proposer after public advertisement of specifications and solicitations of bids or proposals by the Board of Police Commissioners and Public Service, consistent with the City Charter, applicable state law, or executive orders. (1994 C., § 17.56.090; Ord. No. 60935, §§ 1(B), 10, 1988.)

17.56.100 Contract—Certain requirements.

Any such contract shall contain appropriate requirements for bond insurance as determined by the Boards of Police Commissioners and Public Service. (1994 C., § 17.56.100; Ord. No. 60935, §§ 1(B), 11, 1988.)

17.56.110 Term.

Any contract to be entered by the City pursuant to Section 17.56.080 shall not be for a term longer than three (3) years; but at the expiration of a term of any such contract, the City may, as aforesaid, again so contract on specifications, public advertising and competitive bids for further periods of terms of not more than three (3) years' duration. (1994 C., § 17.56.110; Ord. No. 60935, §§ 1(B), 12, 1988.)

17.56.120 On private land—Assessment.

When City equipment and personnel are used to abate any condition as set forth in Section 17.56.020.B.9 or 10 and the City incurs costs in excess of $150.00 in abating such condition, the Director of Streets is authorized to charge the costs of the abatement to the property owner or the owner of the vehicle or parts. The Director of Streets or his agents shall determine and record the date and location of the abatement, the condition abated, the equipment, material and personnel used, the clerical costs and the time expended in the abatement. Any such bill not paid within forty-five (45) days of the date of mailing may be referred either to the

City Counselor for collection or to a collection agency for collection. Interest on any unpaid bill shall accrue at the highest rate allowed by law. (1994 C., § 17.56.120; Ord. No. 60935, §§ 1(B)(part), 13, 1988.)

17.56.130 Fee for removal.

The Director of Streets shall establish a schedule of reasonable fees for the cost of removal of any vehicle or parts or part removed pursuant to Section 17.56.020. Such fee is to be paid by the owner, and is due and payable upon redemption of the vehicle or part. (1994 C., § 17.56.130; Ord. No. 60935, §§ 1(B)(part), 14, 1988.)

PART III. IMPOUNDMENT AND REDEMPTION

17.56.140 Impoundment—Required.

Any vehicle or parts or part removed pursuant to Section 17.56.020 shall be removed to an impoundment area as defined in Section 17.56.010. (1994 C., § 17.56.140; Ord. No. 60935, §§ 1(B)(part), 15, 1988.)

17.56.150 Impoundment—Duration.

Any vehicle or parts removed pursuant to Section 17.56.020(B)(1) through (7) inclusive shall be impounded for a period of thirty (30) days. Any vehicle or parts of vehicles removed pursuant to Section 17.56.020(B)(8) through (10) shall be impounded for a period of ten (10) days. (1994 C., § 17.56.150; Ord. No. 63131, § 1(part), 1994; Ord. No. 62776, § 1(part), 1992; Ord. No. 60935, §§ 1(B)(part), 16, 1988.)

17.56.160 Investigation of theft.

Upon the removal of any vehicle authorized by the Metropolitan Police Department pursuant to Section 17.56.030, that Department shall inquire of the national crime information center and any statewide Missouri law enforcement computer system to determine if the vehicle has been reported as stolen. The report of the removal shall be prepared in conformity with RSMo 304.155 (1987). Upon the removal of any vehicle or part authorized by the Director of Streets pursuant to Section 17.56.040, the Director of Streets shall cause an inquiry to be made by the appropriate law enforcement agency to determine if the vehicle has been reported stolen. The Director of Streets shall assist the Metropolitan Police Department in the disposition of any vehicles determined to be stolen. (1994 C., § 17.56.160; Ord. No. 60935, §§ 1(B)(part), 17, 1988.)

17.56.170 Notice to owner upon impoundment.

The Director of Streets shall make reasonable efforts to ascertain the ownership of all vehicles impounded pursuant to Section 17.56.140. Upon determination of ownership, the Director of Streets shall notify the owner of the location of the vehicle, procedure for redemption as set forth in Section 17.56.190, and final disposition pursuant to Section 17.56.200. Notice shall be enclosed in a sealed envelope, postage prepaid, directed to the owner either at his place of business or residence in the City or elsewhere. (1994 C., § 17.56.170; Ord. No. 60935, §§ 1(B)(part), 18, 1988.)

17.56.180 Fee for storage.

The Director of Streets is authorized to establish a schedule of fees for the cost of storage of any vehicle or parts or part removed and stored in an impoundment area pursuant to Section 17.56.020. Such fee is to be paid by the owner, and is due and payable upon the redemption of the vehicle or part. (1994 C., § 17.56.180; Ord. No. 60935, §§ 1(B)(part), 19, 1988.)

17.56.190 Redemption—Procedure.

The owner or person in charge of the vehicle or parts may redeem an impounded vehicle or parts by complying with the following:

A. Establishing his own identity;

B. Providing proof of ownership;

C. Providing evidence of clearance of any traffic or parking fines or exhibiting summons indicating future court dates for hearings on such offense;

D. Paying the costs for removal and storage; and

E. Signing a release. (1994 C., § 17.56.190; Ord. No. 60935, §§ 1(B)(part), 20, 1988.)

PART IV. FINAL DISPOSITION

17.56.200 Final disposition.

Should any vehicle or parts or part not be redeemed as provided in Section 17.56.190, the Director of Streets shall thereafter either sell the vehicle or parts or part at the best price obtainable or dispose of the vehicle or parts by salvage and destruction through contract authorized under Section 17.56.080. In the discharge of his duties under the provisions of this section, the Director of Streets shall comply with the applicable provisions of RSMo 304.155 (1987). The Comptroller shall establish necessary accounts and files to record and control the aforesaid transactions and reports. (1994 C., § 17.56.200; Ord. No. 60935, §§ 1(B)(part), 21, 1988.)

17.56.210 Notice of final disposition.

The Director of Streets shall post a notice in City Hall and in any impoundment areas conveniently displayed for public viewing seven days before commencement of the intended action for final disposition of the vehicle or parts or part pursuant to Section 17.56.200. This notice shall contain a description of the vehicle parts or part, the name and address of the owner, and the intended date of the sale, or salvage and destruction of the impounded vehicle, parts or part. (1994 C., § 17.56.210; Ord. No. 60935, §§ 1(B)(part), 22, 1988.)

PART V. MISCELLANEOUS PROVISIONS

17.56.220 Property owner—Responsibility.

No owner of a parcel of land within the City shall keep or permit the keeping of, deposit or permit the depositing of, maintain or permit the maintenance of, upon any such parcel of land within the City, any vehicle or parts or part in violation of Section 17.56.020. (1994 C., § 17.56.220; Ord. No. 60935, §§ 1(B)(part), 23, 1988.)

17.56.230 Authority of Street Director.

In the discharge of his duties, the Director of Streets or his authorized representative shall have the authority to enter upon any parcel of land within the City to inspect any parcel of land and to enforce the provisions of this chapter. Should such right of entry be denied in any instance to the Director of Streets or his designated representative, the Director of Streets or his designated representative may invoke the aid of the Police Department or any other department of the City to enforce such right. (1994 C., § 17.56.230; Ord. No. 60935, §§ 1(B)(part), 24, 1988.)

17.56.240 Penalty for violation.

Any person, firm or corporation or other legal entity who shall refuse entry to or deny entry or in any way or any manner interfere with the Director of Streets or his duly authorized representative in carrying out the provisions of this chapter, or to interfere in any manner with the removal of any such vehicle or parts or part in the enforcement of the provisions of this chapter, or fail to abate such condition after notices by the Director of Streets shall, upon conviction thereof, be deemed guilty of a misdemeanor and punished by a fine not less than twenty-five dollars ($25.00) or imprisoned for not more than ninety (90) days, or by both such fine and imprisonment; provided further, each day a violation continues shall be a separate offense. (1994 C., § 17.56.240; Ord. No. 60935, §§ 1(B)(part), 25, 1988.)

Chapter 17.58

PARKING OF VEHICLES UNDERNEATH CITY HALL AND MUNICIPAL COURTS BUILDING

Prior ordinance history: Ord. 52109, 52852

City Counselor Ops.: 9848, 9859

Sections:

17.58.010 Area designated.

17.58.020 Permit required.

17.58.030 Violation tag—Issuance.

17.58.040 Violation tag—Contents—Fine.

17.58.050 Violation—Penalty.

17.58.010 Area designated.

The Building Commissioner is hereby authorized to designate parking spaces in the areas located beneath City Hall and the municipal courts building, the area thirty-five (35) feet to the west of City Hall, the area twenty-five (25) feet by eighty-three (83) feet at the north end of Washington Square, the driveway between the City Jail and the building directly south of the jail and the area between the City Hall and the west line of Twelfth Street and to issue permits for the privilege of parking vehicles in certain designated spaces therein. Stickers shall be issued by the Building Commissioner for the purpose of identification of permit holders. The Building Commissioner is authorized to require the permittee to place said stickers upon the windshield of the permittee's vehicle in order that it may be readily identified. All such permits shall expire on January first next following the date of issuance, and may be revoked at any time at the discretion of the Building Commissioner. (1960 C., § 884.010; 1994 C., § 17.58.010; Ord. No. 55422, § 1, 1969.)

17.58.020 Permit required.

No person shall park any vehicle on said property in those spaces designated for parking without first having obtained a permit therefor from the Building Commissioner, nor shall any person park any vehicle in any place not designated for such person by the Building Commissioner. (1960 C., § 884.020; 1994 C., § 17.58.020; Ord. No. 55422, § 2, 1969.)

17.58.030 Violation tag—Issuance.

The Parking Meter Division of the Treasurer's Office is hereby authorized to issue parking tags when

any vehicle is found parked in violation of this chapter. The Parking Meter Division shall notify the owner or driver of the illegally parked vehicle by handing a parking violation tag to him or affixing such a tag on the vehicle. (1960 C., § 884.030; 1994 C., § 17.58.030; Ord. No. 55422, § 3, 1969.)

17.58.040 Violation tag—Contents—Fine.

A. Such parking violation tag shall contain instructions permitting the owner or driver of the vehicle to appear in person to pay or to mail the sum of ten dollars ($10.00) within seven (7) days to the Traffic Violation Bureau.

B. The instructions shall state that the payment of the ten dollar ($10.00) fine shall be received in lieu of the penalty provided in Section 17.58.050, and in full satisfaction of such violation. (1960 C., § 884.040; 1994 C., § 17.58.040; Ord. No. 55422, §§ 4, 5, 1969.)

17.58.050 Violation—Penalty.

Upon failure to pay such fine within seven (7) days, the owner of the vehicle found so parked in violation of this chapter shall be deemed guilty of a misdemeanor and upon conviction shall be fined not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00) for each offense. (1960 C., § 884.050; 1994 C., § 17.58.050; Ord. No. 55422, § 6, 1969.)

Chapter 17.60

PARKING OF VEHICLES ON GROUNDS OF JUVENILE DETENTION CENTER

City Counselor Ops.: 10172

Sections:

17.60.010 Area designated.
17.60.020 Effect.
17.60.030 Permit required.
17.60.040 Penalty for violation.

17.60.010 Area designated.

The Judge of the Juvenile Court is authorized to designate parking spaces on the grounds of the juvenile detention center, bounded on the north by Bell Avenue, on the east by Spring Avenue, on the south by Enright Avenue and on the west by Vandeventer Avenue. The Juvenile Judge shall issue permits for the privilege of parking in these spaces designated and shall issue stickers for the purpose of identification. The Juvenile Judge is authorized to require the permittee to place said sticker upon the windshield of the permittee's vehicle in order that it may be readily identified. All such permits shall expire on January 1 next following the date of issuance, and may be revoked at any time at the discretion of the Juvenile Judge. (1960 C., § 884A.010; 1994 C., § 17.60.010; Ord. No. 54743, § 1, 1967.)

17.60.020 Effect.

Permits issued by the Juvenile Judge for said parking spaces shall be in effect daily except Sundays and legal holidays between the hours of 7:00 a.m. and 5:00 p.m. (1960 C., § 884A.020; 1994 C., § 17.60.020; Ord. No. 54743, § 2, 1967.)

17.60.030 Permit required.

No person shall park any vehicle on said property in those spaces designated for parking without first having obtained a permit therefor from the Juvenile Judge, nor shall any person park any vehicle in any place not designated for such purpose by said Juvenile Judge. (1960 C., § 884A.030; 1994 C., § 17.60.030; Ord. No. 54743, § 3, 1967.)

17.60.040 Penalty for violation.

Any person violating the provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than one dollar ($1.00) nor more than one hundred dollars ($100.00). (1960 C., § 884A.040; 1994 C., § 17.60.040; Ord. No. 54743, § 4, 1967.)

Chapter 17.61

PARKING ON RUTGER STREET

Sections:

17.61.010 Parking prohibited where.
17.61.020 Sign installations.
17.61.030 Permits for patients of Renal Dialysis.

17.61.010 Parking prohibited where.

The area on the north side of Rutger Street beginning at a point one hundred twenty (120) feet east of the curb where Rutger Street intersects with Spring Avenue and ending one hundred seventy (170) feet east of the curb line where Rutger Street interacts with Spring Avenue is designated as a parking by permit area only from Monday through Saturday, six-thirty a.m. to six p.m., and parking on said street is prohibited unless a vehicle has conspicuously displayed in the windshield a permit issued by the Director of Streets

for parking in the street. (1994 C., § 17.61.010; Ord. No. 62349, § 1, 1991.)

17.61.020 Sign installations.

The Director of Streets is hereby authorized and directed to install signs limiting parking to permit holders only in the area and at times designated in Section 17.61.010. (1994 C., § 17.61.020; Ord. No. 62349, § 2, 1991.)

17.61.030 Permits for patients of Renal Dialysis.

The Director of Streets is hereby authorized to issue up to eight permits at any one time to patients of Renal Dialysis of St. Louis, Inc., for parking in said area and to revoke said permits upon misuse or nonuse of said permits. The Director may issue rules and regulations to effectuate the purpose of this chapter. (1994 C., § 17.61.030; Ord. No. 62349, § 3, 1991.)

Chapter 17.62

PARKING METERS

For parking meter maids, see Ch. 4.30.

City Counselor Ops.: 8084, 9785, 9848, 9859

Sections:

Part I. Parking Meter Commission

17.62.010 Parking Commission established; duties—City Treasurer to serve as Parking Commissioner.
17.62.020 Meetings—Absence.
17.62.030 Quorum.
17.62.040 Records.
17.62.050 Powers and duties.
17.62.055 Continuity of Parking Commission functions and obligations.

Part II. Installations and Temporary Removals

17.62.060 Definitions.
17.62.070 Contracts for parking.
17.62.080 Permanent meter removal.
17.62.100 Temporary meter removal.
17.62.120 Temporary removal—Without fees.
17.62.130 Temporary removal—Action on non-payment of fees.

Part III. Payment, Collection and Penalties

17.62.140 Parking fees generally.
17.62.150 Parking for City Hall.
17.62.160 Parking permits for Aldermen and City employees.
17.62.170 Extra parking spaces—During Board or Committee meetings.
17.62.180 Hours of operation—Generally.
17.62.200 Operating meters.
17.62.210 Supervision of parking meters and collection by City Treasurer.
17.62.220 Parking Meter Fund—Administration and use.
17.62.230 Parking Meter Division.
17.62.240 Violation tags—Contents.
17.62.250 Violation tags—Parking enforcement program.
17.62.260 Administrative adjudication system for municipal parking violations.
17.62.270 Regulations generally.
17.62.280 Prima facie evidence.
17.62.290 Tampering with parking meters.
17.62.300 Stealing money deposited in meters.
17.62.310 Reward for apprehension and conviction of violator of Sections 17.62.290 and 17.62.300.
17.62.320 Commercial and other vehicle parking permits.
17.62.330 Possession of parking meter keys.
17.62.350 Use of money collected.
17.62.360 Existing parking meters.
17.62.370 Hours for certain meters.
17.62.380 Meters prohibited on Hampton Avenue.

PART I. PARKING METER COMMISSION

17.62.010 Parking Commission established; duties—City Treasurer to serve as Parking Commissioner.

A. There is hereby created a Parking Commission composed of a chairman and two members. Such commission shall consist of the Chairman of the Streets, Traffic and Refuse Committee of the Board of Aldermen, the Director of Streets, and the Treasurer who, as Parking Commissioner, shall act as chairperson.

B. The Parking Commission shall be the City's authority responsible for overseeing public parking, including planning and coordinating public parking

policies, programs and operations for any parking facility or area that is owned, leased, or otherwise managed or controlled by the parking division whether in whole or part.

C. On behalf of the City, the Parking Commission shall approve:

1. Guidelines governing the administrative adjudication, disposition and collection of any parking violations or complaints issued by the City; and

2. Budget modification for the parking fund, also known as the "parking meter fund;" and

3. The acquisition, development, regulation and operation of any parking facility or area that is owned, leased, or otherwise managed or controlled by the parking division whether in whole or part.

D. The Treasurer shall be the parking supervisor, also known as the "supervisor of parking meters", for any parking facility or area that is owned, leased, or otherwise managed or controlled by the parking division whether in whole or part, and by virtue of the Treasurer's office and subject to the oversight and authorized funding in whole or in part by the Parking Commission, the Treasurer shall:

1. Establish joint public-private parking ventures; and

2. Supervise the acquisition, development and operation of parking division properties or facilities owned by title or funded in whole or in part, leased or managed by the parking division; and

3. Make and pay contracts and other obligations; and

4. Supervise any other on-street and off-street parking programs and assets; and

5. Provide the comptroller with monthly reports of all parking revenues collected by the City; and

6. Make biannual installment payments of the annual general fund transfer subject to the Parking Commission's approval and provide the Comptroller and Treasurer with monthly reports of all parking revenues collected by the City. (1960 C., § 885.010; 1994 C., § 17.62.010; Ord. No. 71204, § 1, 7-24-2021; Ord. No. 62101, § 1(part), 1990; Ord. No. 49997, § 1, 1960.)

17.62.020 Meetings—Absence.

The Commission shall meet at least once a month and meetings can be called by any member with seventy-two hours' notice to all members and he shall give reasonable notice to the members of the time and place of such meetings. A member or the Chairman may absent himself from attendance of a meeting for good cause, and upon such absence the absent member shall authorize a member of his office to act for all purposes in his stead; said aldermanic member shall delegate another member of his aldermanic committee to act in his absence with full authority; provided further, in case of the absence of the Chairman, the Treasurer's representative shall act as a member and not as a Chairman but such duties and offices of the Chairman shall be performed by the Director of Streets. (1960 C., § 885.020; 1994 C., § 17.62.020; Ord. No. 70611, § 3, 8-1-2017; Ord. No. 49997, § 2, 1960.)

17.62.030 Quorum.

The Chairman and the members of the Commission shall constitute a quorum and a majority of the quorum shall be empowered to act as and for the Commission. For purposes of a quorum, duly authorized representatives appointed as required by Section 17.62.020 shall be considered as members. (1960 C., § 885.030; 1994 C., § 17.62.030; Ord. No. 49997, § 3, 1960.)

17.62.040 Records.

The Chairman shall cause to be kept a journal into which minutes of the proceedings of each meeting and acts of the Commission shall be kept, and he shall also cause to be kept a full transcript of said meetings together with such records and documents as are brought before the Commission. (1960 C., § 885.040; 1994 C., § 17.62.040; Ord. No. 49997, § 4, 1960.)

17.62.050 Powers and duties.

A. The Parking Commission shall have authority to install parking meters, institute parking permit programs and special parking zones along the streets and in other public areas where the parking of motor vehicles is not prohibited, including mixed use, special business, and special use districts, and residential areas as necessary to effectively control public parking. Parking permit programs shall also be subject to the approval of any Alderman in whose ward the program is instituted.

B. The Parking Supervisor is directed to conduct periodic studies and surveys to determine any specific actions required to effectively control public parking, including the number and location of parking meters, the scope and boundaries of parking permit programs and special parking zones, the hours of parking meter operation, the structure of parking violations fines and

penalties, and other parking related fees. In making this determination, the Parking Supervisor shall consider the following criteria:

1. The physical dimensions of the area where public parking is desired;

2. The availability of public parking spaces in the affected area;

3. The current and projected estimates of public parking demands in the affected area;

4. The parking needs of business and commercial establishments in the affected area;

5. The extent of traffic congestion, illegal parking and related health and safety hazards in the affected area;

6. The proximity of public transportation to the affected area;

7. The desire and need of occupants and/or residents of the affected area for permit parking and their willingness to bear any associated administrative cost;

8. The parking rate, fine and penalty structures employed by comparable jurisdictions; and

9. The efficiency and effectiveness of parking management and enforcement programs.

C. Upon making such studies and determinations consistent with generally accepted parking management principles, the Parking Supervisor shall submit any recommended actions to the Parking Commission for review and approval. The Board of Aldermen shall approve or disapprove any such action approved by the Parking Commission no later than the end of the fiscal year in which the action is approved by the Parking Commission. If the Board of Aldermen fails to take action on said measure by the end of the fiscal year, said measure shall become law.

D. The Treasurer, as Parking Supervisor, shall supervise the installation, maintenance and removal of all parking meters, now and hereinafter installed, and shall equip such meters with timing devices and otherwise modify such meters as deemed necessary to comply with meter classification systems and other parking control systems established by the Parking Supervisor. (1960 C., § 885.050; 1994 C., § 17.62.050; Ord. No. 62101, § 1(part), 1990; Ord. No. 49997, § 5, 1960.)

City Counselor Ops.: 8888, 8921, 9785, 9787

Cases:

Ordinance delegating to parking meter commissioner power to determine minimum and specific parking meter charges and the power to determine various time zones for meters was an unlawful delegation of legislative authority. *Automobile Club of Missouri v. City of St. Louis,* 334 S.W. 2d 355 (1960).

McQuillin:

24.640 Parking meters

17.62.055 Continuity of Parking Commission functions and obligations.

If RSMo 82.485 and 82.487 are held unconstitutional and/or invalid, in whole or in part, the Parking Commission established pursuant to the provisions of Chapter 17.62 of the City Code shall be entitled and obligated to take all actions and measures required to assure that Parking Commission functions continue without interruption and that the Parking Commission's financial obligations are timely met and satisfied. In such case, and to the extent necessary or applicable, the Parking Commission established pursuant to the provisions of Chapter 17.62 of the City Code shall considered a successor in interest to any Parking Commission previously created pursuant to RSMo 82.485 and 82.487. In addition, if RSMo 82.485 and 82.487 are held unconstitutional and/or invalid, in whole or in part, the Parking Commission established pursuant to the provisions of Chapter 17.62 of the City Code shall have all authority required to assure that Parking Commission functions continue without interruption and that the Parking Commission's financial obligations are timely met and satisfied.
(Ord. No. 70745, § 1, 3-12-2018.)

PART II. INSTALLATIONS AND TEMPORARY REMOVALS

17.62.060 Definitions.

As used in this part:

A. "Barricaded" means a fence or other man-made obstruction to be constructed or obtained by the person contracting the metered parking space, erected in the metered parking space.

B. "Metered parking space" means the area of the metered parking zone created in the street.

C. "Posted" means the use of a bag or similar cover over the parking meter housing or the insertion in the housing of a sign covering the violation dial, legible through the parking meter housing window.

D. "Supervisor" means the Treasurer of the City as set forth by RSMo 82.485 and this chapter. (1994 C., § 17.62.060; Ord. No. 58013(part), 1980.)

17.62.070 Contracts for parking.

The Treasurer, as Parking Supervisor, is hereby authorized to enter into and make disbursements on contracts for the purchase, installation and maintenance of parking meters, parking permit devices and other parking control systems in designated parking meter zones, parking permit zones and other parking areas, and any other purposes deemed necessary by the Parking Supervisor to effectively control public parking. The payment of the cost of purchase and installation, as agreed upon by contract, may be allocated over a period of years not to exceed ten (10) years. The contract shall set forth all terms and conditions and shall guarantee that the meters shall be in good operating condition at the time of acceptance by the City. The contract shall further specify that the meters shall become the property of the City. (1960 C., § 885.080; 1994 C., § 17.62.070; Ord. No. 62101, § 1(part), 1990; Ord. No. 49997, § 8, 1960.)

17.62.080 Permanent meter removal.

A. The Treasurer, as Parking Supervisor, may order the permanent removal of a parking meter. Whenever a parking meter is removed at the direct or indirect request of any person, partnership, corporation or other organization, the Parking Supervisor may charge said person, partnership, corporation or other organization a one-time meter removal fee set by the Parking Commission. The person, partnership, corporation or other organization shall remit payment in accordance with procedures approved by the Parking Commission.

B. Application for other than temporary meter removal must be made in writing, accompanied by a nonrefundable application fee set by the Parking Commission, and approved by the Supervisor of Parking. The Supervisor of Parking shall assess the above fee plus a penalty set by the Parking Commission for any failure to comply with this section. Any person, partnership, corporation or other organization may appeal said penalties to the Parking Commission. All fees and penalties paid in accordance with this section shall be deposited into the Parking Fund by the Treasurer. (1994 C., § 17.62.080; Ord. No. 62101, § 1(part), 1990; Ord. No. 58013, § 1, 1980.)

17.62.100 Temporary meter removal.

A. The Treasurer, as Supervisor of Parking, may order that certain parking meters be temporarily removed, inactivated or taken out of service and said parking spaces posted or barricaded. No parking meter shall be removed, inactivated or taken out of service without the prior written approval of the Parking Supervisor. Whenever a parking meter is temporarily removed, inactivated or taken out of service at the direct or indirect request of any person, partnership, corporation or other organization, the Parking Supervisor shall charge said person, partnership, corporation or other organization a meter suspension fee based on a schedule of fees established by the Parking Supervisor and approved by the Parking Commission. The person, partnership, corporation or other organization shall remit payment in accordance with procedures approved by the Parking Commission.

B. Application for temporary meter removal must be made in writing, accompanied by a nonrefundable application fee set by the Parking Commission, and approved by the Supervisor of Parking. When any type of construction or demolition renders the metered parking space inoperative, the Supervisor of Parking shall assess the above fee plus a penalty set by the Parking Commission for the failure to comply with this section. Any person, partnership, corporation or other organization may appeal said penalties to the Parking Commission. All fees and penalties paid in accordance with this section shall be deposited into the Parking Fund by

the Treasurer. (1994 C., § 17.62.100; Ord. No. 62101, § 1(part), 1990; Ord. No. 58013, § 3, 1980.)

17.62.120 Temporary removal—Without fees.

The Treasurer, as Supervisor of the Parking Meter Department, may order that certain parking meters shall be temporarily taken out of service without a fee for civic events for not more than seven (7) days in conjunction with permits issued for such event by the Board of Public Service. (1994 C., § 17.62.120; Ord. No. 58013, § 5, 1980.)

17.62.130 Temporary removal—Action on non-payment of fees.

Upon written notification by the Supervisor of the Parking Meter Department that payment is due and unpaid, the Department so notified shall refuse to issue a permit to the applicant contractor until the payment is satisfied and a written clearance is obtained from the Supervisor of the Parking Meter Department. (1994 C., § 17.62.130; Ord. No. 58013, § 6, 1980.)

PART III. PAYMENT, COLLECTION AND PENALTIES

Prior code history: 1960 C. § 885.060

17.62.140 Parking fees generally.

Wherever parking meters exist or are installed under any authorization of this chapter, the fee required to be paid shall be no less than five ($0.05) cents for each fifteen (15) minutes of use of the space controlled by any such parking meter. Parking meters shall be equipped to discharge time in increments of three (3) minutes. The Supervisor of Parking (the City Treasurer) shall establish and maintain a parking meter classification system as necessary to effectively control parking and to advise parkers of the maximum time allowed for parking and the monetary rate required to be paid by parkers for each designated time increment of meter use. Such classification system shall include a schedule of time limits and monetary rates for all parking meters and shall be approved by the Parking Commission subject to the provisions of Section 17.620.050. (1994 C., § 17.62.140; Ord. No. 62101, § 2, 1990; Ord. No. 57535, § 2, 1978.)

17.62.150 Parking for City Hall.

The City Hall parking area lying directly south of City Hall and abutting on Clark Avenue, except that part described in Section 17.62.160, shall be set aside for the exclusive use by members of the public who are visiting or doing business at City Hall between the hours of eight a.m. and five p.m. of each day, except Saturdays, Sundays and holidays. The Parking Commission is directed to establish, and the Parking Supervisor is directed to administer, a parking management program, including parking control devices, parking control signs, a schedule of fees, operating hours, the reservation of parking meter spaces on the public streets immediately adjacent to City Hall, and other policies and procedures as necessary to ensure adequate parking for visitors to City Hall. (1994 C., § 17.62.150; Ord. No. 62101, § 1(part), 1990; Ord. No. 59628, § 1, 1985; Ord. No. 57535, § 3(a), 1978.)

17.62.160 Parking permits for Aldermen and City employees.

The Parking Commission is directed to establish and the Treasurer (Parking Supervisor) is directed to administer a parking permit program for Aldermen, aldermanic employees and other designated City employees. Said permittees shall be permitted to park free of charge within the area known as Washington Park. All such permits shall expire on the date established by the Parking Commission next following the date of issuance and shall be removed or dishonored should any Alderman, aldermanic employee or other designated City employee terminate membership or employment with the Board of Aldermen or the City. (1994 C., § 17.62.160; Ord. No. 62101, § 1(part), 1990; Ord. No. 57535, § 3(b), 1978.)

17.62.170 Extra parking spaces—During Board or Committee meetings.

A. The Parking Meter Commission is further directed to render inoperative a total of forty-one (41) parking meters abutting on both sides of the whole of above-described easternmost driveway and the northern portion of the eastern side of the westernmost driveway of said Washington Square area, during any day or days on which the full Board of Aldermen shall be in session and also, from time to time, such parking meters as may be required for use by Aldermen during the time any committee of the Board of Aldermen has scheduled a meeting or hearing, sufficient to accommodate the Aldermen by placing over such parking meters hoods marked "No Parking." For this purpose the Clerk of the Board of Aldermen shall notify the City Treasurer at least 2 days in advance of any such board or committee meeting of the number of such hoods reasonably required for the purpose. It shall be unlaw-

ful for any vehicle without the permits described in Section 17.62.160 to park on any meter while so rendered inoperative.

The Treasurer's Office is directed to establish a total of nine disabled parking spaces, including one van accessible space, in the areas specified in the following paragraph, complying with the ADA in the area known as Washington Square, located in areas convenient to the accessible entrance to City Hall and the Office on the Disabled. Establishment of five additional disabled parking spaces shall include access aisle and lane striping, above-ground metal signs and on-ground painted signage, construction and maintenance of which is to be completed within 30 days after the passage of Ordinance 63643 and to be paid from Treasurer's Office parking lot proceeds.

The nine permanent disabled parking spaces shall be the four parking spaces nearest if not adjacent to the Office on the Disabled that are currently designated disabled parking spaces. The remaining 5 disabled parking spaces shall be located in the existing permit-only parking spaces northwest of the accessible entrance at City Hall and the Office on the Disabled.

B. No person shall park any vehicle in those spaces above designated during the hours above designated for parking by Aldermen and their employees without first having obtained a permit therefor from the Parking Meter Commission.

C. The Parking Meter Commission is further directed to render inoperative four (4) parking meters located on the western side of the above-described easternmost driveway in Washington Park opposite the southernmost driveway under City Hall until noon on any day that the unloading of parking meter trucks is required.

D. The Parking Meter Division of the Treasurer's Office is hereby authorized to issue parking tags when any vehicle is found parked in violation of Sections 17.62.150 through 17.62.170. The Parking Meter Division shall notify the owner or driver of the illegally parked vehicle by handing a parking violation tag to him or affixing such a tag on the vehicle.

E. Such parking violation tag shall contain instructions permitting the owner or driver of the vehicle to appear in person to pay or to mail the sum of ten dollars ($10.00) within seven (7) days to the Traffic Violation Bureau.

F. The instructions shall state that the payment of the ten dollar ($10.00) fine shall be received in lieu of the penalty hereinafter provided and in full satisfaction of such violation.

G. Upon failure to pay such fine within seven (7) days, the owner of the vehicle found so parked in violation of Sections 17.62.150 through 17.62.170 shall be deemed guilty of a misdemeanor and upon conviction shall be fined not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00) for each offense. (1994 C., § 17.62.170; Ord. No. 63643, §§ 2, 3, 1996; Ord. No. 58737, § 1, 1983; Ord. No. 58019, § 1, 1980; Ord. No. 57535, § 3(c),(d), 1978.)

17.62.180 Hours of operation—Generally.

The hours during which all parking meters shall be operative, unless otherwise provided by law or the Parking Commission as needed to effectively control public parking, shall be between the hours of six a.m. and ten p.m., except Sundays, New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving, Christmas and any Monday celebrating a holiday dated on the Sunday immediately preceding. The Parking Commission shall specify hours of operation within said maximum hours. (1994 C., § 17.62.180; Ord. No. 62101, § 1(part), 1990; Ord. No. 61347, § 2, 1989; Ord. No. 57535, § 4, 1978.)

17.62.200 Operating meters.

Whenever a vehicle shall be parked in a metered parking zone, the person parking such vehicle shall be required to deposit in said parking meter a coin of United States money of the denomination indicated in instructions appearing on the parking meter device in accordance with the schedule of fees set out in this part. If such parking meter requires the movement of a lever as well as a deposit of a coin for actuation, the person so depositing the coin shall immediately actuate the lever to properly set the device in operation. The permissible time allowed for the continuous parking of a vehicle shall be clearly indicated upon the parking meter device or in the immediate vicinity. A vehicle utilizing a space associated with a parking meter device shall at all times be positioned so as to be completely within the indicated limits associated with the space. (1960 C., § 885.070; 1994 C., § 17.62.200; Ord. No. 49997, § 7, 1960.)

17.62.210 Supervision of parking meters and collection by City Treasurer.

A. The City Treasurer is hereby authorized and directed to supervise all collections of coins from in-

stalled parking meters and to install, repair, maintain, operate and control all parking meters and to undertake the marking of spaces associated therewith.

B. Following the adoption of an ordinance approving a budget for the Parking Meter Fund pursuant to Section 17.62.220 below, the City Treasurer is further hereby authorized and directed to make all disbursements associated with the functions described herein in accordance with said budget and applicable provisions of the City Charter and the Revised Code of the City of St. Louis, and subject to audit in the manner provided by state law.

C. Following the adoption of an ordinance or ordinances establishing additional on- or off-street parking programs under the supervision of the Treasurer's Office, the City Treasurer is further hereby authorized and directed to implement and collect for such programs. (1960 C., § 885.090; 1994 C., § 17.62.210; Ord. No. 62047, § 1(part), 1990; Ord. No. 49997, § 9, 1960.)

17.62.220 Parking Meter Fund—Administration and use.

A. *Establishment, Definition and Purpose of Fund.* There is hereby established a Parking Meter Fund which shall be under the supervision of the City Treasurer, acting in the capacity of Parking Supervisor. All funds received from parking meters, signed or metered zones, parking facilities or parking contracts managed by the Treasurer's Office and parking violation tags issued by Parking Violation Inspectors employed by the Treasurer's Office (including fees, fines and penalties paid to the Traffic Violation Bureau but excluding fees, fines and/or penalties paid as a result of warrant, arrest and/or court proceedings) and funds received from the investment or sale of Parking Meter Division assets shall be deposited in said fund. All expenses for the purchase, maintenance, operation and control of parking meters, signed or metered zones, and preparation and issuance of parking violation tags by the Parking Meter Division, including all personnel, material, supply, and equipment costs and all expenses incidental thereto, shall be paid from the Parking Meter Fund and not from the general revenue of the City, in accordance with annual budgets approved by the Parking Meter Commission and the Board of Aldermen as described below.

B. *Annual Budget.*

1. On or before April 1 of each calendar year subsequent to the passage of this chapter, the Treasurer shall submit to the Parking Meter Commission a proposed budget for the Parking Meter Fund for the next City fiscal year. The Parking Meter Commission shall review and approve said proposed budget and forward it, in ordinance form, to the Board of Aldermen by May 1 of each year, having first made any amendments to said budget deemed necessary or desirable by the Parking Meter Commission. The Board of Aldermen shall approve said budget by ordinance on or before July 1 of each year, having first made any amendments deemed necessary or desirable by the Board.

2. The annual budget shall include projected revenues to the fund for the applicable fiscal year and any revenues from the previous Parking Meter Fund balance proposed for expenditure during said fiscal year and shall include in detail all expenditures, both capital and operating, proposed for said fiscal year and all line item budget modifications and travel shall be prepared by the Parking Commission. Any payments required by the appropriations herein shall be made in accordance with the policy and procedures imposed by the Comptroller. The Parking Commission, at the end of each fiscal year, shall transfer to the City's General Fund an amount equal to forty percent (40%) of net parking revenues. Net parking revenues shall be defined as parking revenues net of: (1) operations and maintenance expenses as defined herein; (2) amounts required to meet the annual debt service obligations on outstanding parking bonds and other payment obligations related to the assets and operations of the Parking Division; (3) the satisfaction of any reserve requirements set forth in the December 1, 2006, trust indenture entered into among the City of St. Louis, Supervisor of Parking Meters, the Parking Commission of the City of St. Louis, and UMB BANK, N.A., as supplemented; and (4) amounts approved by the Parking Commission and related to capital improvements and/or other projects which are not otherwise captured in items (1) through (3) above.

As used herein, the term "operations and maintenance expenses " means all of the reasonable, necessary and lawful costs and expenses payable by the Parking Division relating to the operation, maintenance, administration and monitoring of the parking system and the enforcement of parking ordinances incurred in any particular fiscal year or period to which said term is applicable or charges made therefor during such fiscal year or period; operation and maintenance expenses shall not include: (a) items that are capitalized pursuant

to then-existing accounting practices of the Issuer; (b) any amounts transferred by the Supervisor of Parking Meters to the general fund of the City pursuant to the terms of this section during such period; (c) depreciation and/or amortization; or (d) payments with respect to bonds, parity indebtedness or subordinated indebtedness.

C. *Expenditures.* During the applicable fiscal year, the Treasurer is authorized to make disbursements from the Parking Meter Fund in accordance with said budget and applicable provisions of the City Charter and the Revised Code of the City of St. Louis, and subject to audit in the manner provided by state law. The Treasurer is not authorized to make any payments or disbursements which have not been approved for said fiscal year by the Board of Aldermen through ordinance. The budget may be amended during the fiscal year from time to time by ordinance.

D. *Recordkeeping, Accounting and Reporting.*

1. The City Treasurer shall establish an appropriate accounting system for the recording of all parking meter revenues and expenditures. The system shall include accounting for debt service reserves when applicable, replacement reserves when applicable, and reserves for parking improvements when applicable, as well as an accounting of the unencumbered fund balance. The Parking Meter Division's fixed assets shall be accounted for in accordance with generally accepted accounting principles (GAAP). The City Treasurer shall calculate the annual depreciation costs for all Parking Meter Division fixed assets as necessary to determine the appropriate amount to be reserved for parking improvements. The Treasurer shall prepare and forward monthly accounting reports including this information to the Parking Meter Commission and the Board of Aldermen. The Parking Commission shall have monthly meetings to allow timely review of said reports. Any cancellation or rescheduling of monthly meetings shall be approved by a majority vote of the Commission; this vote may be taken on a conference call.

2. In addition, the Treasurer shall prepare monthly reports including the amounts and types of all revenue received by the Parking Meter Fund, including, inter alia, revenues from the operation of the meters and from the issuance of parking violation tags and detailing the numbers and types of parking violation tags issued, and shall forward said report to the Budget Division. Said report shall include information for the current month as well as year-to-date totals.

3. The Traffic Violation Bureau shall prepare monthly reports including the amounts and types of revenue received in respect to parking violation tags issued by the Parking Meter Division and shall forward said report to the Budget Division. Said report shall include information for the current month as well as year-to-date totals.

4. The Budget Division shall obtain monthly reports from the Regional Justice Information Service (REJIS) detailing the amounts and types of parking violation tags issued by the Parking Meter Division and the amounts and types of revenue received in respect to said tickets. Said report shall include information for the current month as well as year-to-date totals. The budget division shall reconcile the Treasurer's, Traffic Violation Bureau and REJIS reports and shall submit a consolidated report to the Treasurer, the Parking Meter Commission and the Board of Aldermen, noting any discrepancies between reports.

5. At the election of the Parking Meter Commission and the Board of Estimate and Apportionment, the frequency of the reports described in this section may be changed to quarterly. At the election of the Parking Meter Commission, the Traffic Violation Bureau and the Board of Estimate and Apportionment, applicable reports described above may be consolidated in a comprehensive traffic violation issuance and revenue report. The Parking Meter Fund shall be assessed for the reasonable costs of reprogramming the REJIS system to produce the reports described above.

E. *Remittances.*

1. The Traffic Violation Bureau shall collect and daily remit to the Treasurer all payments in respect to parking violation tags issued by employees of the Treasurer's Office, together with a report detailing the sources of the payments; provided, however, that, with the concurrence of the Parking Meter Commission, the Traffic Violation Bureau, and the Board of Estimate and Apportionment, the Treasurer may develop and implement alternate means of payment. If alternate means of payment are implemented, the Treasurer shall assume the responsibility for reporting to the Budget Division on payments received.

2. The Treasurer shall, before the end of each quarter of each fiscal year, remit to the General Fund one-fourth of the minimum amount due to the General

Fund as described in Subsection A of this section. Not more than thirty days following the end of each fiscal year, the Treasurer shall remit to the General Fund the amount by which 40% of the net charge in fund balance exceeds the minimum amount, together with a report to the Budget Division and the Board of Estimate and Apportionment detailing the calculation of the payment.

F. *Transition Provisions.* For the fiscal year beginning on July 1, 1990, only, the Parking Meter Fund budget shall be submitted to the Board of Aldermen by October 1 and approved by the Board of Aldermen by December 1, but said budget shall apply to the entire fiscal year beginning July 1, 1990, and ending on June 30, 1991. (1960 C., § 885.100; 1994 C., § 17.62.220; Ord. No. 70700, § 1, 1-27-2018; Ord. No. 70611, §§ 1, 2, 8-1-2017; Ord. No. 62047, § 1(part), 1990; Ord. No. 49997, § 10, 1960.)

17.62.230 Parking Meter Division.

The City Treasurer shall establish as a part of his department a Parking Meter Division, which shall be responsible for the duties set forth in Chapter 17.62 of the Revised Code of the City of St. Louis, the development and enforcement of policies and procedures relating to this chapter, and any other functions necessary to carry out the duties set forth therein. He shall appoint such personnel as are necessary for the performance of said duties and as are provided for in the budget approved as described in Section 17.62.220. The salaries of all such appointees shall be fixed by ordinance and all salaries and expenses shall be paid from the Parking Meter Fund and not from the General Revenue of the City. The Treasurer shall require from each Parking Meter Division employee who collects or accounts for Parking Meter Division receipts a bond in the sum of fifty thousand dollars ($50,000.00) payable to the City, conditioned on the faithful performance of such employee's duties; provided, however, that the cost of obtaining such bond shall be borne by the Parking Meter Fund. It shall be the duty of all Parking Meter Division employees who collect coins deposited in the parking meters to remove such coins from the coin chamber or compartment in such meter and deliver the same, with seal unbroken, to the office of the City Treasurer or any alternate site designated by the City Treasurer. (1960 C., § 885.110; 1994 C., § 17.62.230; Ord. No. 62047, § 1(part), 1990; Ord. No. 49997, § 11, 1960.)

City Counselor Ops.: 9811, 9867

17.62.240 Violation tags—Contents.

A. Whenever any vehicle shall be found illegally parked in violation of posted signs or meters, the Police or Parking Violation Inspectors, or other Treasurer Office employees, shall notify the driver of such vehicle of such violation by handing to him or her or affixing on the vehicle a parking meter violation tag. The design, format and contents of such tag shall be approved by the Parking Commission and the tags shall be obtained, issued and controlled solely by the Parking Supervisor.

B. Such tag shall contain instructions requiring the owner of the vehicle or driver to remit the sum as provided in this chapter to the Traffic Violation Bureau or another entity, site or address approved by the Parking Commission in accordance with a schedule of fees, penalties and deadlines established by the Parking Commission, administered by the Parking Supervisor and filed at the Register's Office.

C. The instructions shall state that the payment of the fine shall be received in lieu of the penalty provided in this part and in full satisfaction of such violation. Upon failure to pay such fine within the days designated in the schedule established by the Parking Commission, the owner of the vehicle found parked in violation of this chapter shall be deemed guilty of a misdemeanor, and upon conviction shall be punished as provided by law. (1960 C., § 885.120; 1994 C., § 17.62.240; Ord. No. 62101, § 1(part), 1990; Ord. No. 60274, § 1, 1987; Ord. No. 55336, § 1, 1969; Ord. No. 49997, § 12, 1960.)

City Counselor Ops.: 9629

17.62.250 Violation tags—Parking enforcement program.

A. The Treasurer (Parking Supervisor) or his employees are hereby authorized to issue parking meter violation tags throughout the City, and to issue parking tags for violation of parking signs or regulations throughout the City and in Washington Square and City Hall parking lots not requiring the presence of a police officer.

B. Parking violation tags shall be issued when any vehicle shall be illegally parked in, located in a parking meter zone when the time signal shows a violation, parked longer than the authorized time limit or when the parker has failed to operate the meter in accordance with the instructions provided on the meter.

C. Parking violation tags shall be issued when any vehicle shall be illegally parked or located in a no-parking zone, parked longer than the authorized time limit or otherwise deemed in violation of any parking regulation of the City.

D. The Treasurer (Parking Supervisor) or his employees shall notify the driver of the illegally parked vehicle by handing him or affixing on the vehicle a violation tag. Such tag shall contain instructions requiring the owner of the vehicle or driver to remit payment, in accordance with procedures established by the Parking Commission, of the sum of not less than five dollars ($5.00) for a parking meter violation or the sum of not less than fifteen dollars ($15.00) for a parking violation within seven (7) days to the Traffic Violation Bureau, except for violations within the downtown district. Within the downtown district the owner of the vehicle shall pay the sum of not less than seven dollars ($7.00) for a parking meter violation or the sum of not less than twenty dollars ($20.00) for a parking violation within seven (7) days to the Traffic Violation Bureau. "Downtown district" shall be defined for purposes of this chapter as that area within the following boundaries: starting at the point of intersection of the Mississippi River and Highway 40, west along Highway 40 to the alley west of 20th Street, north along the alley west of 20th Street to the alley north of Delmar, east along the alley north of Delmar to the alley west of Tucker Boulevard, north along the alley west of Tucker Boulevard to the alley north of Cole Street, east along the alley north of Cole Street to the Mississippi River, south along the Mississippi River to the starting point.

E. Upon failure to pay such fine within the time period designated in said instructions, the owner of the vehicle, if found guilty of such parking violation, shall, upon conviction, be subject to a fine assessment, vehicle impoundment or other remedial action based upon procedures established by the Parking Commission, administered by the Parking Supervisor and filed at the Register's Office. Said owner shall be fined not less than five dollars ($5.00) and not more than twelve dollars ($12.00) for each such meter violation and not less than fifteen dollars ($15.00) and not more than one hundred dollars ($100.00) for each such other parking violation, except within the downtown district. Within the downtown district the owner shall be fined not less than seven dollars ($7.00) and not more than twelve dollars ($12.00) for each such meter violation and not less than twenty dollars ($20.00) and not more than one hundred dollars ($100.00) for each such other parking violation.

F. The Parking Commission is directed to conduct a study of current parking violation fines and penalties and to make recommendations to the Board of Aldermen concerning the parking violation fine and penalty structure by December 31, 1990.

G. The Parking Violation Bureau is prohibited from doubling parking meter violations and parking violations, as defined within Chapter 17.62 of the City Code, if fines are paid in full within twenty (20) calendar days or less.

H. If a person appeals their fine through the administrative process, as set forth in Chapter 17.62.260 of the City Code or Missouri Revised Statute § 536, the Parking Violation Bureau is prohibited from doubling their fine, as long as payment is received within thirty (30) or less calendar days after final judgment on the matter. (1960 C., § 51.020(part); 1994 C., § 17.62.250; Ord. No. 70751, §§ 1, 2, 5-1-2018; Ord. No. 62101, § 1(part), 1990; Ord. No. 60274, § 2, 1987; Ord. No. 56492, § 1(part), 1973; Ord. No. 55739, § 4, 1971; Ord. No. 55423, § 4, 1969.)

17.62.260 Administrative adjudication system for municipal parking violations.

A. *Formation.* An administrative adjudication unit, which shall serve as the administrative tribunal for parking ordinance violations as that term is used in RSMo 479.011, shall establish and maintain an administrative system for adjudicating parking ordinance violations designated for administrative adjudication by ordinance. The administrative adjudication unit shall operate under the supervision of the Parking Commission, subject to legal practice, procedure and pleading rules approved or recognized by the municipal court or another division of the Circuit Court, in the Parking Violations Bureau or another location approved by the Parking Commission.

B. *Jurisdiction.* The jurisdiction of the administrative adjudication unit shall encompass all citations issued by the City of St. Louis and officers of the St. Louis Metropolitan Police Department for the violation of any ordinance relating to parking, as defined in City ordinances, including, but not necessarily limited to, violations of ordinances encompassed in City Code Sections 17.16.210, 17.24.010, 17.24.020, 17.24.030, 17.24.040, 17.24.070, 17.24.080, 17.28.010, 17.30.020, 17.30.025, 17.30.070, 17.38.020, 17.62.020, 17.62.200,

17.70.010, 17.77.030 and 17.80.010 and any other codes designated for administrative adjudication by ordinance. The administrative adjudication unit shall be responsible for the first level review and disposition of any parking citations that are contested and provide for the collection of any unpaid fines, penalties and costs associated with those parking citations.

C. *Review Process.* The administrative adjudication system shall provide for an effective and efficient adjudication process for individuals who wish to contest a citation for a violation of a code within the jurisdiction of the administrative adjudication unit. The administrative adjudication process authorized herein shall ensure a fair, impartial and efficient review of contested municipal code violations, and shall afford the parties due process of law. This process shall provide a preliminary inquiry assessment and, for those individuals dissatisfied with the results of the preliminary inquiry assessment, an administrative hearing and, for those individuals dissatisfied with the results of the administrative hearing, a judicial hearing. A preliminary inquiry assessment shall entail an informal administrative process through which an individual may submit an inquiry and obtain information about the validity of a municipal code violation by mail, Internet or other means approved by the Parking Commission. The Parking Commission shall adopt policies and procedures for governing the administrative adjudication system. These policies and procedures shall document the manner in which the administrative adjudication unit is to perform administrative adjudication activities, including, but not limited to, review rights and requirements, application and documentation submittal requirements, notification deadlines and forms, disposition policies, and appeal criteria and notification. In addition, all administrative hearings shall be conducted in accordance with the legal practice, pleading and procedure rules established by the Municipal Court, Circuit Court or Supreme Court.

D. *Review Rights.* Any person issued a citation for violation of a City ordinance shall be advised on the citation of the right to request administrative adjudication. Any person wishing to contest a citation may first request a preliminary inquiry assessment of the citation with the administrative adjudication unit, but there shall be no filing fee for such an assessment. Any person who desires an administrative hearing shall submit a formal request for said hearing accompanied by a written statement of the grounds for contesting the citation, and any other materials required by the prescribed administrative adjudication policies and procedures. The Parking Commission may also require an administrative hearing fee not to exceed twenty-five dollars ($25.00) per contested violation, but said fee shall only be levied if the person contesting the violation is deemed liable for the violation. Any person's right to an administrative hearing shall expire if the administrative adjudication unit does not receive a documented challenge to the municipal violation within thirty (30) calendar days after the issuance date of the citation, or by the close of business on the first day following such thirtieth day if it is a Saturday, Sunday or holiday. Failure to comply with the prescribed administrative adjudication policies and procedures shall result in the forfeiture of any fines and penalties paid in connection with the contested violation and be deemed an admission of liability for that violation.

E. *Timing.* Administrative hearings shall be scheduled with reasonable promptness and any notice of an administrative hearing shall include the code violation type and nature, administrative hearing date and location and penalties for failing to appear at the hearing. Upon receipt of a valid request for an administrative hearing, the administrative adjudication unit shall schedule the hearing, notify the applicant for the hearing (the contestant) and suspend, as of the date of the hearing request, the applicability of any Parking Commission policy which increases the penalty or any related costs for non-payment of the parking violation fine being contested. Such suspension shall continue until the administrative adjudication process is concluded. If the person contesting the citation (the contestant) fails to appear at the scheduled administrative hearing, the suspension shall be terminated. The administrative hearing date may be extended once, for not more than ten business days, by contacting the administrative adjudication unit and requesting said extension in accord with the prescribed administrative adjudication policies and procedures.

F. *Hearing Officers.* The Parking Commission shall approve a process for ensuring that qualified individuals conduct or preside over administrative hearings on behalf of the administrative adjudication unit, including the appointment and removal of administrative hearing officers. As impartial and independent fact finders, administrative hearing officers may: hear testimony and review relevant evidence; preserve and authenticate hearing records and evidence; issue written

findings of fact, decision, and order, including the fine, penalty or action with which the contestant must comply; and impose penalties and assess costs consistent with applicable state and local laws and rules. An administrative hearing officer shall be an attorney licensed to practice law in the State of Missouri or another individual meeting those requirements set forth in relevant state or local law. An administrative hearing officer shall possess sufficient competence to administratively adjudicate municipal code violations, including, but not necessarily limited to, experience in administrative law, familiarity with the rules of procedure for administrative hearings, and a working knowledge of the subject area of the municipal code violations that they will adjudicate. An administrative hearing officer's employment and compensation shall not, directly or indirectly, be linked to the amount of fines. Administrative hearing officers shall not be deemed members of the "classified service" of the City of St. Louis, as that term is used in the City Charter and all ordinances promulgated thereunder. The Parking Commission may establish additional policies and procedures for ensuring that administrative hearing officers demonstrate the objectivity and qualifications necessary to conduct fair, impartial and expeditious hearings.

G. *Evidence.* The formal rules of evidence shall not apply in any informal review or administrative hearing. Evidence, including hearsay, may be admitted only if it is the type of evidence commonly relied upon by reasonably prudent persons in the conduct of their affairs. The officer or person who issued the citation need not be present. The parking violation notice and related documentation in proper form, or a copy thereof, shall be prima facie evidence of the municipal code violation.

H. *Disposition.* Upon completing its review of the information submitted by the person contesting the citation, the administrative hearing officers of the administrative adjudication unit shall determine in writing whether the contestant is liable or not liable for the violation. If the contestant is found not liable for the violation, the administrative adjudication unit shall refund the filing fee or deposit (if any) and waive all violation fines and late payment penalties accrued to date. If the contestant is found liable for the violation, the administrative adjudication unit shall keep the fines and penalties paid to date (if any), assess any violation fines and late payment penalties and other fees accrued to date, direct the collection of any unpaid fines and costs in accordance with RSMo 479.011 and reactivate other sanctions in accord with the prescribed administrative adjudication policies and procedures, but it shall not impose incarceration or any fine in excess of the amount allowed by law. The administrative adjudication unit shall notify the person contesting the citation of its decision within ten (10) business days of the conclusion of the administrative hearing and, unless an appeal is filed, return any material submitted by the contestant at the earliest practical time. If the contestant fails to appear and is found liable by the administrative hearing officer, and requests a new administrative hearing in accordance with approved policies and procedures, the administrative adjudication unit may set aside any finding and set a new administrative hearing date, but only if it determines that the failure to appear at the administrative hearing was for good cause. Any written determination of liability or non-liability for a code violation by the administrative adjudication unit, or one of its hearing officers, shall constitute a final decision for purposes of judicial review, subject to review under RSMo Ch. 536.

I. *Judicial Hearing.* Contestants aggrieved by the determination of the administrative adjudication unit may apply for a judicial review, subject to any application requirements set by the Circuit Court, but any person's right to a judicial review shall expire if the proper court does not receive a written request for a judicial review within thirty (30) calendar days of the administrative adjudication unit's issuance of its written determination.

J. *Judgments.* Any sanction, fine or costs, or part thereof, remaining unpaid after the exhaustion of, or the failure to exhaust, judicial review procedures under RSMo Ch. 536, shall be a debt due and owing the City of St. Louis, and may be collected in accordance with applicable law. If a contestant fails to comply with a directive pertaining to the collection of unpaid fines, penalties, fees and costs issued under authority of the administrative adjudication unit, any expenses incurred by the City of St. Louis to enforce the directive, including, but not limited to, court, administrative and vehicle storage costs, after they are fixed by the administrative adjudication unit or a court of competent jurisdiction, shall be a debt due the City of St. Louis and may be collected in accordance with applicable law. Upon being recorded in the manner required by state law or the Uniform Commercial Code, a lien may be imposed on the real or personal property of any con-

testant found liable for a municipal code violation in the amount of any debt due the City under this section and enforced in the same manner as a judgment lien under a court of competent jurisdiction.

K. *Fiscal.* All expenses of the administrative adjudication unit shall be payable from the Parking Fund and General Fund in proportion to the relative share of parking citations heard, reviewed or adjudicated by the administrative adjudication unit. All expenses of the administrative adjudication unit, including compensation or fees for the administrative hearing officers, shall be subject to appropriation.

L. *Other.* Nothing contained in this section shall be construed to affect the validity of any other administrative adjudication systems authorized by local law and created by the City of St. Louis before April 1, 2007. (1994 C., § 17.62.260; Ord. No. 67513, §§ 1—12, 2007.)

17.62.270 Regulations generally.

A. No person shall park, cause, allow or permit to be parked any vehicle owned or operated by such person in any metered parking space without depositing the required coin designated herein at the slot provided on parking meters, and immediately thereafter actuating fully the meter starting mechanism, in accordance with the provisions of this part.

B. No person shall cause, allow, permit or suffer any motor vehicle registered in his name or under his control to be parked in a metered parking space beyond the lawful period of time prescribed for such space as provided herein.

C. No person shall deposit or cause to be deposited in said parking meter any coin for the purpose of increasing or extending the parking time of any vehicle beyond the legal parking time, as herein provided.

D. No person shall cause, allow, permit or suffer any motor vehicle owned or operated by such person to be parked across or outside of any line designating a metered parking zone space, or parked in a designated parking zone or area without a proper and duly authorized permit, or otherwise parked in violation of any parking regulations established by the Parking Commission. Any vehicle parked in contravention with these provisions shall be deemed to be illegally parked under the provisions of this part. (1960 C., § 885.130; 1994 C., § 17.62.270; Ord. No. 62101, § 1(part), 1990; Ord. No. 52092, § 1, 1963; Ord. No. 49997, § 13, 1960.)

City Counselor Ops.: 10266

17.62.280 Prima facie evidence.

The presence of any vehicle found parked in violation of the provisions of this part in any parking meter zone space shall be prima facie evidence that the person, firm or corporation in whose name such vehicle is registered, in either the records of the City License Collector or the records of the Director of Revenue of the State, committed or authorized such violation. (1960 C., § 885.140; 1994 C., § 17.62.280; Ord. No. 49997, § 14, 1960.)

17.62.290 Tampering with parking meters.

No person shall deposit in any parking meter of the City any slug or substitute for a coin of United States money or deface, injure, damage, tamper with or willfully break, destroy, or impair the usefulness of any parking meter installed under the provisions of this chapter. (1960 C., § 885.150; 1994 C., § 17.62.290; Ord. No. 49997, § 15, 1960.)

17.62.300 Stealing money deposited in meters.

No person shall take, steal or carry away any moneys or coins deposited in any parking meter. (1960 C., § 885.160; 1994 C., § 17.62.300; Ord. No. 49997, § 16, 1960.)

17.62.310 Reward for apprehension and conviction of violator of Sections 17.62.290 and 17.62.300.

The City Treasurer is hereby authorized to offer a standing reward of ten dollars ($10.00) for the apprehension and conviction of any persons violating the provisions of Sections 17.62.290 and 17.62.300 and such reward shall be paid from the money in the Parking Meter Fund. (1960 C., § 885.170; 1994 C., § 17.62.310; Ord. No. 49997, § 17, 1960.)

17.62.320 Commercial and other vehicle parking permits.

A. The Parking Commission shall establish and the Parking Supervisor shall administer a comprehensive parking permit program, including vehicle classes, permit fees and permit control devices, for commercial and other vehicles as necessary to effectively control public parking subject to the provisions of Section 17.62.050. Commercial vehicles with approved permits issued by the Parking Supervisor may occupy any parking space duly designated by the Parking Supervisor without payment of any additional meter fee for the purpose of loading or unloading merchandise, but shall

not remain longer than the maximum time period allowed pursuant to the approved parking permit program.

B. Whenever parking permit programs are established under any authorization of this section, the permit fees required to be paid shall be approved by the Parking Commission, collected by the Parking Supervisor and deposited into the parking fund by the Treasurer. The Supervisor of Parking shall establish and maintain a parking permit system as necessary to effectively control parking in designated areas. Such permit system shall include a schedule of operating hours, time limits and monetary rates for designated areas and vehicles and shall be approved by the Parking Commission. (1960 C., § 885.180; 1994 C., § 17.62.320; Ord. No. 62101, § 1(part), 1990; Ord. No. 49997, § 18, 1960.)

17.62.330 Possession of parking meter keys.

No person, except employees of the Parking Meter Division having the duty to open parking meters and such persons having supervisory authority over such employees, shall possess any key or other device for the purpose of opening City parking meters; provided further, any person violating the prohibition of this section shall, upon conviction, be fined not more than five hundred dollars ($500.00) or imprisonment in the City Workhouse for a period not to exceed one hundred days, or by both fine and imprisonment. (1960 C., § 885.181; 1994 C., § 17.62.330; Ord. No. 51735, § 1, 1963.)

17.62.350 Use of money collected.

The provisions of this part are to afford special facilities for parking of motor vehicles in the City.

Except as otherwise provided by ordinance, all money received in accordance with the provisions of this part is hereby declared to be for traffic regulation purposes and all such money to be employed by the City for the regulation of motor vehicle traffic including the providing of additional parking facilities both on the streets of the City and at other locations off such streets. (1960 C., § 885.200; 1994 C., § 17.62.350; Ord. No. 49997, § 20, 1960.)

17.62.360 Existing parking meters.

All parking meters previously installed along the streets and public places of the City which are not in conflict with the provisions of this chapter shall be and are hereby declared lawful. (1960 C., § 885.210; 1994 C., § 17.62.360; Ord. No. 49997, § 21, 1960.)

17.62.370 Hours for certain meters.

The parking meters on lots 35, 36, 37, 38 and 39 of City block No. 1515 fronting on the west side of Ohio Avenue between Cherokee Street and Utah Street shall be operative between the hours of 7:00 p.m. and 11:00 p.m. every day except Sundays, in addition to the hours as regulated by the Parking Meter Commission.

Any person, firm or corporation who parks or causes to be parked a vehicle in violation of the provisions of this section shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined the sum of not less than one dollar nor more than five hundred dollars. (1960 C., § 885.240; 1994 C., § 17.62.370; Ord. No. 49404, § 2, 1959.)

17.62.380 Meters prohibited on Hampton Avenue.

Parking meters are prohibited from being installed and maintained on Hampton Avenue between the south line of Itaska Street and north line of Robert Avenue and between the south line of Arsenal Street and the north line of Itaska Street by any board, department, division, agency, officer or employee of the City. Should parking meters be already installed prior to January 10, 1964, on one or both sides of Hampton Avenue between Itaska Street and Robert Avenue, the board, department, division, agency, officer, or employee of the City which installed the same, shall remove such meters within five days of January 10, 1964. (1960 C., § 885.250; 1994 C., § 17.62.380; Ord. No. 52320, § 1, 1964; Ord. No. 52319, § 1, 1964.)

Chapter 17.63

PARKING VIOLATIONS—INCAPACITATION OF VEHICLE BY CITY

Sections:

17.63.010	**Authority.**
17.63.020	**Unauthorized removal prohibited—Penalty for violation.**
17.63.030	**Administrative fee assessed in addition to towing or storage costs.**
17.63.040	**Towing or storage fee for stolen automobiles.**
17.63.050	**Notice to owner of stolen vehicle.**
17.63.060	**Administrative fee for recovery of stolen vehicles.**

17.63.010 Authority.

In addition to the authority to remove parked vehicles as provided in Ordinance 60935 and codified in

Section 17.56.030 et seq., any member of the Metropolitan Police Department and any designated employee or agent of the office of the City Treasurer shall have the authority to incapacitate from movement under its own power any vehicle found within the City of St. Louis having four (4) or more previously issued parking violation notices that the driver, owner or person having charge of such vehicle has failed to answer or on which he has failed to appear. Such vehicles may also be incapacitated by any designated employee or agent of the Director of Streets when so authorized by any member of the Metropolitan Police Department or employee or agent of the office of the City Treasurer. (1994 C., § 17.63.010; Ord. No. 64668, § 1, 1999.)

17.63.020 Unauthorized removal prohibited—Penalty for violation.

A. No person other than a member of the Metropolitan Police Department, the office of the Treasurer or the St. Louis City Towing Division shall tow or move the incapacitated vehicle, authorize the towing or moving of the incapacitated vehicle or remove the device used to incapacitate the vehicle.

B. Any person who enters a plea of guilty or is found guilty of a violation of this section shall be assessed a fine of not less than five hundred dollars ($500.00) or imprisoned for a period of not less than ninety (90) days or be subject to both a fine and imprisonment. (1994 C., § 17.63.020; Ord. No. 64668, § 2, 1999.)

17.63.030 Administrative fee assessed in addition to towing or storage costs.

Prior to the release of any vehicle incapacitated under the authority of this chapter, the driver, owner or person in charge of such vehicle shall pay an administrative fee of fifty dollars ($50.00) which shall be deposited in the Parking Trust Fund. This fee shall be in addition to any towing or storage costs which may be incurred. (1994 C., § 17.63.030; Ord. No. 64668, § 3, 1999.)

17.63.040 Towing or storage fee for stolen automobiles.

It is prohibited for the Department of Streets, any St. Louis City department or quasi-government agency located in the City of St. Louis to charge a towing or storage fee, including dollying and labor, for any stolen automobile recovered in the City limits, as long as the automobile is claimed at the Towing Service Division (7410 Hall St.) during regular business hours by the registered owner of the automobile, possessing a valid state I.D., within seventy-two (72) hours of the automobile's owner being contacted by St. Louis Metropolitan Police Department. The seventy-two (72) hours will not include Sundays and St. Louis City holidays. (Ord. No. 70569, § 1(5), 7-6-2017.)

17.63.050 Notice to owner of stolen vehicle.

The St. Louis Metropolitan Police Department employee who initially contacts the owner of the stolen automobile will record the exact date and time of the initial contact on the police report. The time on the police report is presumed to be the correct "starting time" for the seventy-two (72) hour period. The victim's contact information on file with St. Louis Metropolitan Police Department is presumed to be the most up-to-date and correct contact information. (Ord. No. 70569, § 1(6), 7-6-2017.)

17.63.060 Administrative fee for recovery of stolen vehicles.

It is prohibited for the Department of Streets, any City department or quasi-government agency located in the City of St. Louis to charge an administrative fee under this chapter if the towing of a stolen automobile was the direct result of parking violation(s) acquired after an initial police report for the stolen automobile was filed. Nothing in this section will interfere with a department's right to collect administrative fees for an automobile that acquired four (4) or more parking violations before a police report for the stolen car was filed. (Ord. No. 70569, § 1(7), 7-6-2017.)

Chapter 17.64

LIMITED ACCESS STREETS

Sections:

17.64.010 Hall Street Industrial Highway.
17.64.020 Access streets enumerated.
17.64.030 Barricades.
17.64.040 Violation—Penalty.

17.64.010 Hall Street Industrial Highway.

Hall Street Industrial Highway from the south curb line of Riverview Drive to the south curb line of Blase Avenue is hereby declared to be a limited access street in order to more safely regulate the flow of traffic on to, along and off of such street. (1994 C., § 17.64.010; Ord. No. 55654, § 1, 1970.)

17.64.020 Access streets enumerated.

It shall be unlawful for any person, firm or corporation to drive any vehicle into or across such limited access street from the following streets or to drive any vehicle from the limited access street into the following streets:

A. Christian Avenue;

B. Thrust Avenue;

C. Ponce Avenue;

D. Bittner Avenue, west of Hall Street Industrial Highway;

E. Doddridge Avenue, west of Hall Street Industrial Highway. (1994 C., § 17.64.020; Ord. No. 55654, § 2, 1970.)

17.64.030 Barricades.

The Director of Streets is hereby authorized and directed to take whatever action as may be necessary to effectuate the purpose of this chapter, including, but not limited to, the erection of temporary or permanent barricades, stanchions or the like. (1994 C., § 17.64.030; Ord. No. 55654, § 3, 1970.)

17.64.040 Violation—Penalty.

Any person, firm or corporation which violates this chapter shall be guilty of a misdemeanor and shall be subject to a fine of not less than $50.00 or more than $250.00 or thirty days in jail or both. (1994 C., § 17.64.040; Ord. No. 55654, § 4, 1970.)

Chapter 17.66

RESTRICTED USE ON LOCUST STREET

Sections:

17.66.010 Authorized vehicles defined.
17.66.020 Hours.
17.66.030 Bus lane.

17.66.010 Authorized vehicles defined.

For the purposes of this chapter "authorized vehicles" means taxicabs, U.S. mail trucks, emergency vehicles and vehicles which have entered Locust Street from a driveway or alley between the boundary streets. (1994 C., § 17.66.010; Ord. No. 56646, § 2, 1974.)

17.66.020 Hours.

The use of other than authorized vehicles on Locust Street between Broadway and Eleventh Streets between the hours of 4 p.m. and 6 p.m. is hereby prohibited. (1994 C., § 17.66.020; Ord. No. 56646, § 3, 1974.)

17.66.030 Bus lane.

The north curb lane shall be utilized by buses only between Broadway and Eleventh Streets between the hours of 4 p.m. and 6 p.m. (1994 C., § 17.66.030; Ord. No. 56646, § 4, 1974.)

Chapter 17.68

REGULATION OF TRUCKS BY WEIGHT

Sections:

17.68.010 Limitation on trucks over certain weight—Areas designated.
17.68.020 Proof of loading, unloading or servicing documentation—Required.
17.68.030 Violation—Penalty.

17.68.010 Limitation on trucks over certain weight—Areas designated.

A. All trucks licensed for over 24,000 pounds gross vehicle weight are prohibited except for loading, unloading or servicing within the area bounded as follows: beginning at the intersection of Memorial Drive and Walnut Street, thence west along Walnut Street to 12th Blvd., thence north along 12th Blvd. to Convention Plaza, thence east along Convention Plaza to 6th Street, thence south along 6th Street to Washington Avenue, thence east along Washington Avenue to Memorial Drive, thence south along Memorial Drive to a point of beginning. The perimeter streets named above shall not be considered as part of the prohibited area, and shall be made available for use by trucks.

B. No person shall drive, tow, or move any commercial truck, truck-tractor, tractor, or commercial trailer with a gross vehicle weight (GVW) in excess of 26,000 pounds on McCausland Avenue northbound from the north boundary of Manchester Avenue to the south boundary of Wise Avenue between the hours of 6:00 p.m. and 8:00 a.m., Monday through Sunday. The provisions of this subsection shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service to noncommercial vehicles.

C. No person shall drive, tow, or move any commercial truck, truck-tractor, tractor, or commercial trailer with a gross vehicle weight (GVW) in excess of 26,000 pounds on Russell Boulevard from the east boundary of South Seventh Street to the west bound-

ary of Gravois Avenue. The provisions of this subsection shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service. This subsection shall not be construed as a prohibition against any vehicle which is traveling directly to a destination for loading, unloading, or servicing, if there is no alternative route to said destination on streets and alleys where truck traffic is not prohibited.

D. No person shall drive, tow, or move any commercial truck, truck tractor, tractor, or commercial trailer with a gross vehicle weight (GVW) in excess of twenty-six thousand (26,000) pounds within the following boundaries:

1. North boundary as Carr Street from the East boundary of Leonora K. Sullivan to the west boundary of Lumier Place Boulevard;

2. East boundary as Leonora K. Sullivan from the North boundary of Carr Street to the south boundary of Washington Avenue;

3. South boundary as Washington Avenue from the East boundary of Lenora K. Sullivan to the west boundary of Lumier Place Boulevard;

4. West boundary as Lumier Place Boulevard from the North boundary of Carr Street to the south boundary of Washington Avenue.

(1994 C., § 17.68.010; Ord. No. 71981, § 1, 2-24-2025; Ord. No. 70223, §§ 1—3, 3-2-2016; Ord. No. 69503, § 1, 7-11-2013; Ord. No. 69093, §§ 1, 2, 2-13-2012; Ord. No. 69092, §§ 1, 2, 2-13-2012; Ord. No. 57457, § 1, 1977.)

17.68.020 Proof of loading, unloading or servicing documentation—Required.

All trucks licensed for over 24,000 pounds gross vehicle weight within the area described in Section 17.68.010 for loading, unloading or servicing shall furnish documentation of said purpose such as a bill of lading, freight bill, shipping order, manifest, shipping or consignee ticket, address of destination or address of previous stop immediately preceding. (1994 C., § 17.68.020; Ord. No. 57457, § 2, 1977.)

17.68.030 Violation—Penalty.

Any person, firm or corporation who drives or causes to be driven a truck in violation of the foregoing provisions of this chapter shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than one dollar nor more than five hundred dollars. (1994 C., § 17.68.030; Ord. No. 57457, § 3, 1977.)

Chapter 17.69

VEHICLES TRANSPORTING FLAMMABLE LIQUIDS

Sections:

17.69.010 Hours of operation restricted in designated area.

17.69.020 Penalty for violation.

17.69.010 Hours of operation restricted in designated area.

It shall be unlawful for any commercial motor vehicle containing for transportation loads of whatever size or volume of gasoline, kerosene, propane and fuel oil to be present or operate between the east curb line of Twelfth (12th) Street on the west, the west curb line of I-55—I-70 on the east, the north curb line of Clark Avenue on the south and the north curb line of Martin Luther King Drive on the north, between the hours of 7:00 a.m. and 6:00 p.m. of every day except Sunday. (1994 C., § 17.69.010; Ord. No. 57584, § 1, 1978.)

17.69.020 Penalty for violation.

Any violation of the provisions of this chapter shall be punishable by a fine not exceeding $500.00 chargeable against the operator of the offending motor vehicle. Each day of any violation shall constitute a separate offense. (1994 C., § 17.69.020; Ord. No. 57584, § 2, 1978.)

Chapter 17.70

PARKING IN FOREST AND WILMORE PARKS

For park regulations, see Ch. 22.16.

Sections:

17.70.010 Parking limitations in Forest Park.

17.70.020 Violation of Section 17.70.010—Penalty.

17.70.030 Parking on McKinley Drive—Permit required.

17.70.040 Parking on McKinley Drive—Permit—Issuance.

17.70.050 Visitors' parking area on McKinley Drive.

17.70.060 Parking only in designated areas on McKinley Drive.

17.70.070 Violation of Sections 17.70.030 through 17.70.060—Penalty.

17.70.080 Parking on Washington Drive Circle—Permit required.

17.70.090 Parking on Washington Drive Circle—Permit issuance.

17.70.100 Violation of Section 17.70.080 or 17.70.090—Penalty.

17.70.010 Parking limitations in Forest Park.

The parking and driving of vehicles on the following drives, intersections, entrances to buildings, skating rink, and other public buildings and recreation areas in Forest Park as hereinafter enumerated, is hereby limited and regulated as set forth:

1. No parking at anytime on the south side of Clayton Road between Jefferson Drive and the entrance to the Planetarium;

2. No parking at anytime on the east side of Jefferson Drive between Clayton Road and Wells Drive;

3. No parking at anytime on the north side of Clayton Road from Jefferson Drive to a point 75 feet west of the intersection;

4. No parking at anytime on the west side of Jefferson Drive from Clayton Road to a point 75 feet north of the intersection;

5. No parking at anytime on the east side of Wells Drive from Grand Drive to Jefferson Drive;

6. No parking at anytime on both sides of Greenhouse Drive from McKinley Drive to a point 300 feet west of McKinley Drive, and from Clayton Drive to a point 500 feet east of Clayton Drive;

7. No parking at anytime on the south side of Clayton Drive between Greenhouse Drive and McKinley Drive;

8. No parking at anytime around the triangles at the intersection on Hampton Drive, Greenhouse Drive to Wells Drive;

9. No parking anytime on both sides of Grand Drive from Skinker Boulevard to a point 400 feet east of Skinker Boulevard;

10. No parking at anytime on the east drive to the Field House in front of the handball courts;

11. No parking at anytime on both sides of Union Drive between Grand Drive and Lindell Boulevard;

12. No parking at anytime on both sides of the entrance drive to the Steinberg Skating Rink;

13. No parking at anytime on West Pine Drive, between Kingshighway Boulevard and Lindell Boulevard;

14. No parking between signs in front of the World's Fair Pavilion;

15. No parking at anytime on Wells Drive in front of entrance to Tourist Camp;

16. No parking at anytime on the south and east side of West Drive to the Field House;

17. No parking anytime along the north curb line of Clayton Road from the west curb line of Faulkner Drive for a distance of 75 feet eastward;

18. No parking anytime along the west curb line of Jefferson Drive from the south curb line of Faulkner Drive for a distance of 75 feet southward;

19. No parking anytime along the east curb line of Faulkner Drive from the south curb line of Jefferson Drive for a distance of 75 feet southward;

20. No parking anytime along the east curb line of Faulkner Drive from the north curb line of Clayton Road for a distance of 75 feet northward;

21. No parking anytime along the west curb line of Faulkner Drive between the north curb line of Clayton Road and the south curb line of Jefferson Drive;

22. Three-hour parking only Monday through Friday along the east curb line of Faulkner Drive from a point 75 feet north of the north curb line of Clayton Road and extending 350 feet northward;

23. Three-hour parking only Monday through Friday along the north curb line of Clayton Road starting at a point 675 feet west of the west curb line of Jefferson Drive to a point 75 feet east of the east curb line of Faulkner Drive;

24. Three-hour parking only Monday through Friday along the west curb line of Jefferson Drive starting at a point 475 feet north of the north curb line of Clayton Road and extending a distance of 125 feet northward;

25. Keep to right around circle at the intersection of Wells Drive and McKinley Drive;

26. Make Valley Drive one-way west and south from the east entrance at Government Drive to the west exit at Government Drive;

27. Four-way stop signs at Wells Drive and Jefferson Drive;

28. Four-way stop signs at Government Drive and Washington Drive;

29. Stop sign at the southeast corner of McKinley Drive and Carr Lane Drive, controlling Carr Lane;

30. Stop sign at the northwest and southeast corners of Clayton Drive and Jefferson Drive, controlling Jefferson Drive;

31. Stop sign at the southeast and northwest corners of McKinley Drive and Clayton Drive, controlling McKinley Drive;

32. Stop sign at Grand Drive at the golf course starter's building, controlling Grand Drive;

33. Stop sign at the southeast corner of Grand Drive and Washington Drive, controlling Washington Drive;

34. Stop sign at the northeast corner of Grand Drive and Washington Drive, controlling Grand Drive;

35. Stop sign at the southeast corner of Grand Drive and Jefferson Drive, controlling northbound Jefferson Drive;

36. Stop sign at the northwest corner of Grand Drive and Jefferson Drive, controlling westbound Grand Drive;

37. Stop sign at intersection of Deer Lake and Theatre Drives, controlling Deer Lake Drive;

38. Stop sign at the northwest corner of Union Drive and Grand Drive, controlling Grand Drive;

39. Stop signs at southeast and northwest corners of Grand Drive and Government Drive, controlling Government Drive;

40. Stop sign at the northwest corner of Grand and Theatre Drives, controlling Grand Drive;

41. Stop sign at the southeast corner of Grand and Wells Drives, controlling Wells Drive;

42. Stop sign at the southeast corner of Jefferson and Faulkner Drives, controlling Faulkner Drive;

43. Stop signs at Tamm and Wells Drives intersections coming off of Tamm Avenue, controlling Tamm Drive;

44. Stop sign at northwest corner of Fine Arts and Government Drives, controlling Fine Arts Drive;

45. Stop sign at northwest corner of Des Peres and Grand Drives, controlling Des Peres Drive;

46. Stop signs on Express Highway Exit and Entrance Ramps at Clayton Road and Jefferson Drive, controlling all movements;

47. Stop signs at intersection of Union and Theatre Drives, controlling Union Drive;

48. Stop sign on southeast corner Criquet Drive and Lindell Boulevard, controlling Criquet Drive;

49. Stop sign on northwest corner of DeBaliviere and Grand Drives, controlling DeBaliviere Drive;

50. Stop sign at northeast corner of Grand Drive and Lindell Boulevard at Skinker Boulevard, controlling Grand Drive;

51. Stop signs at intersection of Clayton Road and Faulkner Drive, controlling Faulkner Drive;

52. No parking anytime along the west curb line of Washington Drive between Grand Drive and Lagoon Drive;

53. No parking anytime along the east curb line of Washington Drive between Lagoon Drive and Grand Drive;

54. No parking anytime adjacent to the triangular island formed by Lagoon Drive, Grand Drive and Washington Drive;

55. No parking anytime on the south side of Lagoon Drive between Washington Drive and Grand Drive;

56. East Drive and West Drive shall be designated as one-way drives with traffic operating only in a westbound direction;

57. Vehicles shall be parked only at an angle of 45 degrees to the curb on the north and west side of West Drive to the Field House. (1994 C., § 17.70.010; Ord. No. 54216, §§ 1, 2, 1966; Ord. No. 51358, § 2, 1962.)

17.70.020 Violation of Section 17.70.010—Penalty.

Any person, firm or corporation who parks or causes to be parked or who drives or causes to be driven a vehicle in violation of Section 17.70.010 shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than one dollar nor more than five hundred dollars. (1994 C., § 17.70.020; Ord. No. 51358, § 3, 1962.)

17.70.030 Parking on McKinley Drive—Permit required.

The parking of vehicles on McKinley Drive in Forest Park between Clayton Road and the Daniel Boone Expressway during the hours of 8:00 a.m. to 5:00 p.m. Monday through Friday is hereby prohibited except on legal holidays or by permit issued by the Director of Parks, Recreation and Forestry to park in those spaces and areas designated by said Director. (1994 C., § 17.70.030; Ord. No. 54698, § 1, 1967.)

17.70.040 Parking on McKinley Drive—Permit—Issuance.

The Director of Parks, Recreation and Forestry shall issue permits in the form of stickers to be placed on the lower left-hand corner of the windshield of the permittee's vehicle in order that it may be readily identified. All such permits shall be issued at the discretion of the Director of Parks, Recreation and Forestry on a yearly basis and may be cancelled and renewed at his discretion. (1994 C., § 17.70.040; Ord. No. 54698, § 2, 1967.)

17.70.050 Visitors' parking area on McKinley Drive.

The Director of Parks, Recreation and Forestry shall designate a "Visitors' Parking Area" on McKinley Drive containing at least five parking spaces which may be utilized by the general public without permit. The Director may regulate parking in the "Visitors' Parking Area" by assigning a parking limit of not less than one hour nor more than two hours. (1994 C., § 17.70.050; Ord. No. 54698, § 3, 1967.)

17.70.060 Parking only in designated areas on McKinley Drive.

No person shall park any vehicle on McKinley Drive between Clayton Road and the Daniel Boone

Expressway in any area not designated as a parking area by the Director of Parks, Recreation and Forestry. (1994 C., § 17.70.060; Ord. No. 54698, § 4, 1967.)

17.70.070 Violation of Sections 17.70.030 through 17.70.060—Penalty.

Any person violating the provisions of Sections 17.70.030 through 17.70.060shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than one dollar nor more than five hundred dollars. (1994 C., § 17.70.070; Ord. No. 54698, § 5, 1967.)

17.70.080 Parking on Washington Drive Circle—Permit required.

The parking of vehicles along the south curb line of Washington Drive Circle between the prolongation of the east curb line of DeBaliviere Avenue and the prolongation of the west curb line of DeBaliviere Avenue is hereby prohibited except by permit issued by the Director of Parks, Recreation and Forestry to park in those spaces and areas designated by said Director. (1994 C., § 17.70.080; Ord. No. 55141, § 1, 1968.)

17.70.090 Parking on Washington Drive Circle—Permit issuance.

The Director of Parks, Recreation and Forestry shall issue permits in the form of stickers to be placed on the lower left-hand corner of the front windshield of the permittee's vehicle in order that it may be readily identified. All such permits shall be issued at the discretion of the Director of Parks, Recreation and Forestry on a yearly basis and may be cancelled and renewed at his discretion. (1994 C., § 17.70.090; Ord. No. 55141, § 2, 1968.)

17.70.100 Violation of Section 17.70.080 or 17.70.090—Penalty.

Any person, firm or corporation violating Section 17.70.080 or 17.70.090 shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than one dollar nor more than five hundred dollars. (1994 C., § 17.70.100; Ord. No. 55141, § 3, 1968.)

Chapter 17.71

RESERVE PARKING FOR CIRCUIT ATTORNEY'S OFFICE VEHICLES

Sections:

17.71.010 Area designated.

17.71.010 Area designated.

The parking of vehicles, except for vehicles used and designated by the Circuit Attorney's Office, is hereby prohibited on the east side of 14th Street from a point 160 feet south of the south curb line of Market Street to a point 365 feet south of the south curb line of Market Street. The Circuit Attorney shall issue placards designating the vehicle is being used by the Circuit Attorney's Office and said placards shall be conspicuously displayed in any vehicle parked in said restricted area. (1994 C., § 17.71.010; Ord. No. 63350, § 1, 1995.)

Chapter 17.72

RESERVE PARKING FOR POLICE VEHICLES

Sections:

17.72.010 Area designated.
17.72.020 Accomac Street.
17.72.030 Bingham Street.

17.72.010 Area designated.

The parking of vehicles except for police vehicles is hereby prohibited on the north side of Clark Street from Twelfth Street to the entrance of City Hall lot, on the south side of Clark Street from Twelfth Street to the entrance to the police headquarters parking lot, the west side of Thirteenth Street between Chestnut and Market Streets, and on the north side of Chestnut Street for police vehicles and special permitted vehicles between Thirteenth and Fourteenth Streets. (1994 C., § 17.72.010; Ord. No. 57694, § 2, 1978; Ord. No. 57653, § 1, 1978.)

17.72.020 Accomac Street.

The parking of vehicles, except for police vehicles, is hereby prohibited on the north side of Accomac Street beginning at a point 250 feet west from the northwest corner of Accomac Street and continuing, from said point, 25 feet west. (1994 C., § 17.72.020; Ord. No. 63619, § 1, 1995.)

17.72.030 Bingham Street.

The parking of vehicles, except for police vehicles, is hereby prohibited on the north side of Bingham Avenue beginning at a point 200 feet east from the northeast corner of Grand Boulevard and continuing, from such point, 25 feet west. (1994 C., § 17.72.030; Ord. No. 65299, § 1, 2001.)

Chapter 17.73

PARKING OF RECREATIONAL MOTOR VEHICLES

Sections:

17.73.010 Sixty-minute limit.

17.73.020 Parking prohibited.

17.73.030 Penalty for violation.

17.73.010 Sixty-minute limit.

Recreational motor vehicles, over eighteen feet (18') in length, are hereby prohibited from parking on public rights-of-way, streets or alleys, for over sixty (60) minutes in residential areas, zoned A, B, C, D and E, between the hours of 7:00 a.m. and 2:00 a.m. (1994 C., § 17.73.010; Ord. No. 69275, § 1, 11-8-2012; Ord. No. 58698, § 1, 1982.)

17.73.020 Parking prohibited.

And furthermore, recreational motor vehicles over eighteen feet (18') in length are hereby prohibited from parking on public rights-of-way, streets or alleys in residential areas zoned A, B, C, D and E, between 2 a.m. and 7 a.m. (1994 C., § 17.73.020; Ord. No. 69275, § 2, 11-8-2012; Ord. No. 58698, § 2, 1982.)

17.73.030 Penalty for violation.

Any person, firm, or corporation found guilty of violation of this chapter shall be fined not more than five hundred dollars ($500.00) or imprisoned for not more than ninety (90) days, or by both such fine and imprisonment. (1994 C., § 17.73.030; Ord. No. 58698, § 3, 1982.)

Chapter 17.74

OVERDIMENSIONAL VEHICLES

Sections:

17.74.010 Definitions.

17.74.020 Permit—For travel on truck routes.

17.74.030 Permit—Application—Issuance conditions.

17.74.040 Annual fee and annual charge.

17.74.050 Insurance requirements.

17.74.060 License decal display.

17.74.070 Penalty for violation.

17.74.010 Definitions.

The following words when used in this chapter shall have the meaning ascribed to them in this section.

A. "Overdimensional" means any vehicle that is more than fifteen feet (15′) high, nine feet (9′) wide, forty feet (40′) long, excluding tractor trailers which may be fifty-five feet (55′) long.

B. "Special vehicle" means self-propelled vehicles over dimension that do not change in size.

C. "Truck route" means public streets designated by the Department of Streets for truck use. (1994 C., § 17.74.010; Ord. No. 58206, § 1, 1980.)

17.74.020 Permit—For travel on truck routes.

Overdimensional self-propelled vehicles may obtain an annual permit from the Department of Streets to travel on truck routes throughout the City. (1994 C., § 17.74.020; Ord. No. 58206, § 2, 1980.)

17.74.030 Permit—Application—Issuance conditions.

All owners or operators of special vehicles may apply to the Director of Streets for an annual permit to run the special vehicle. This vehicle will be inspected by the Department of Streets and certified subject to restriction before said permit is issued. (1994 C., § 17.74.030; Ord. No. 58206, § 3, 1980.)

17.74.040 Annual fee and annual charge.

An initial fee of one hundred dollars ($100.00) and an annual charge of twenty-five dollars ($25.00) shall be made. (1994 C., § 17.74.040; Ord. No. 58206, § 4, 1980.)

17.74.050 Insurance requirements.

The permittee shall furnish proof of proper insurance coverage: $25,000.00 to $100,000.00 for personal injury liability, $25,000.00 for property damage, on file at the permit office or to accompany the application for the permit. (1994 C., § 17.74.050; Ord. No. 58206, § 7, 1980.)

17.74.060 License decal display.

A license decal issued by the Director of Streets shall be prominently displayed at a location approved by the Department of Streets. (1994 C., § 17.74.060; Ord. No. 58206, § 5, 1980.)

17.74.070 Penalty for violation.

Anyone guilty of operating an overdimensional vehicle without a permit shall be in violation of this chapter and subject to a fine of not less than twenty-five dollars ($25.00) and not more than five hundred dollars ($500.00). (1994 C., § 17.74.070; Ord. No. 58206, § 6, 1980.)

Chapter 17.75

PARKING FOR EXCISE DIVISION INVESTIGATORS

Sections:

17.75.010 **Allowed in no parking zones—Exceptions.**

17.75.020 **Authorized placard display required—Exclusive issuance.**

17.75.010 Allowed in no parking zones—Exceptions.

Investigators for the Excise Division as designated by the Excise Commissioner, when on official duty, shall be allowed to park, without payment of fees, at any parking meter or contrary to posted "No Parking" zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, wheelchair ramps, within 30 feet of a curb line of any intersection, nor within disabled parking spaces unless vehicle displays a permanent Missouri placard or license plate for the disabled. (1994 C., § 17.75.010; Ord. No. 64346, § 1, 1998.)

17.75.020 Authorized placard display required—Exclusive issuance.

Each authorized individual shall display one (1) placard, approved by the Excise Commissioner, in either the front or rear window of private or City vehicles, to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets, in accordance with this chapter during normal working hours. The Excise Commissioner shall not issue such placards to any person not on the Excise Division payroll. The Excise Commissioner shall have the authority to request cancellation of parking tickets issued contrary to this chapter. (1994 C., § 17.75.020; Ord. No. 64346, § 2, 1998.)

Chapter 17.76

PARKING FOR DISABLED PERSONS

Sections:

17.76.010 **Use of parking spaces for the disabled.**

17.76.020 **Residential disabled parking space permit—Application.**

17.76.025 **Residential disabled parking space permit—Renewal and fee.**

17.76.030 **Nonresidential disabled parking space permit—Application.**

17.76.035 **Nonresidential disabled parking space permit—Renewal and fee.**

17.76.040 **Penalty for violation.**

17.76.050 **Parking meter exemption—Permit issuance standards.**

17.76.060 **Parking meter exemption—Disabled permit required.**

17.76.070 **Parking meter exemption—Appeal of permit refusal.**

17.76.080 **Personal residence—Permit issuance.**

17.76.090 **Personal residence—Posting of signs.**

17.76.100 **Personal residence—No parking without permit.**

17.76.110 **Removal of any residential disabled parking space and cancellation of permit.**

17.76.010 Use of parking spaces for the disabled.

No person shall park a vehicle in a residential disabled parking space unless the vehicle displays either a permanent disabled placard, disabled license plate, or disabled veterans license plate issued by the State of Missouri pursuant to provisions stated in RSMo 301.071 or 301.142 and a numbered permit issued pursuant to Section 17.76.020 which corresponds to the permit number indicated on the disabled parking space signs erected at that space.

No person shall park in a nonresidential disabled parking space unless said vehicle displays either a disabled placard, disabled license plate, or disabled veterans license plate issued by the State of Missouri pursuant to provisions stated in RSMo 301.071 or 301.142 or a disabled placard, license plate or disabled veterans license plate, clearly displaying the international symbol of access issued by another state. (1994 C., § 17.76.010; Ord. No. 63590, § 2(part), 1995; Ord. No. 61550, § 2(part), 1989; Ord. No. 60124, § 2(part), 1986; Ord. No. 58590, § 1, 1982.)

17.76.020 Residential disabled parking space permit—Application.

A. Any individual, parent of a child with an eligible disability, or a family member residing full time with an eligible person, owning a vehicle registered to the address or any eligible person whose vehicle is owned

by another and such eligible person resides at the address at which the permit sign is to be erected and possessing a current permanent state disabled placard, disabled license plate or disabled veterans license plate, as described in Section 17.76.010, may apply for a residential disabled parking space permit. A residential disabled parking space permit may only be granted for use by a vehicle, registered in the City of St. Louis, unless the vehicle is owned by another person but driven by an eligible person applying for a residential disabled parking space permit at least fifty percent of the time and such vehicle possesses a current permanent state disabled placard, disabled license plate or disabled veterans license plate, as described in Section 17.76.010, and which shall be regularly parked at said disabled parking space. Application for a residential disabled parking space permit shall be made to the Office on the Disabled. Said office shall approve a permit if the application is for the benefit of an individual with at least one of the following disabilities:

1. Wheelchair;
2. Leg Braces;
3. Crutches;
4. Canes;
5. Walker;
6. Cerebral Palsy;
7. Multiple sclerosis;
8. Muscular dystrophy;
9. Spina bifida;
10. Severe rheumatoid arthritis;
11. Degenerative arthritis;
12. Amputation of legs;
13. Pulmonary Class Three or greater;
14. Cardiac;
15. Cardiovascular impairments Class Three or greater;
16. Therapeutic Class CDE;
17. Alzheimer's disease;
18. Stroke;
19. Osteoarthritis;
20. Amyotrophic Lateral Sclerosis (ALS)
21. Blindness;
22. Physical disability recognized by the Americans with Disabilities Act as a qualified disability. This would be determined by the Commissioner of Disabilities.

B. If the Office on the Disabled approves an application for a residential disabled parking space permit, a numbered permit shall be issued to the applicant and shall be posted on the windshield of said vehicle. The permit must be used at all times with the permit holder's permanent disabled placard or license plate. The Commissioner of Traffic or his/her designee, with the consent of the property owner, shall install signs indicating such restricted parking space on any public right-of-way for a period of time not to exceed two (2) years subject to bi-annual renewal. Said signs shall be numbered the same as the permit issued to the applicant and shall indicate that the disabled parking space is reserved at all times for permit parking only. The Commissioner of Traffic or his/her designee upon recommendation of the Office on the Disabled may, where special conditions exist, install signs indicating a residential disabled parking space notwithstanding the availability of driveway or off-street parking. Permit holders full-time members of the household with two (2) or more vehicles and with access to off-street parking, may use that off-street parking for any vehicle the permit holder's vehicle. An individual applying for a residential disabled parking space at their personal residence shall not be charged for installation or maintenance of said signs. A list of all approved residential disabled parking space permits shall be kept in the office of the Register and the Office on the Disabled.

C. A decision denying an application for a residential disabled parking space permit may be appealed in writing to the Office on the Disabled. The Office on the Disabled shall forward all appeals to a special panel of the Advisory Council on the Disabled created by Ordinance Number 57432 within ten days of the receipt of said appeal. If this panel of the Special Council on the Disabled grants the appeal, the Commissioner of Traffic or his/her designee is instructed to erect a designated residential disabled parking space immediately. If the Special Council of Disabled denies the appeal, a residential disabled parking space will not be granted.

D. No applicant with off-street parking shall be approved for a residential disabled parking permit/space unless he/she presents to the Office on the Disabled a statement from his/her primary physician that, because of the applicant's disability, the applicant cannot use his/her off-street parking. This statement in conjunction with all other requirements contained in this section will be used to consider approval. A garage as part of a residence with dimensions of less than a total length of fifteen feet and a garage door opening width of less than 9 feet is not considered off-street

parking for the purposes of this section. (1994 C., § 17.76.020; Ord. No. 70643, § 1, 11-8-2017; Ord. No. 67757, § 1, 2007; Ord. No. 67365, §§ 1, 2, 2007; Ord. No. 66591, § 1, 2004; Ord. No. 65142, § 1, 2001; Ord. No. 64296, § 2, 1998; Ord. No. 63590, § 2(part), 1995; Ord. No. 62049, § 2, 1990; Ord. No. 61550, § 2(part), 1990; Ord. No. 60124, § 1(part), 1986; Ord. No. 59069, § 1, 1984; Ord. No. 58881, § 1, 1983; Ord. No. 58590, § 2, 1982.)

17.76.025 Residential disabled parking space permit—Renewal and fee.

The residential disabled parking space permit must be renewed every two (2) years by completing an application for renewal before May 31 of the renewal year. (1994 C., § 17.76.025; Ord. No. 64296, § 2, 1998; Ord. No. 63590, § 2(part), 1995; Ord. No. 61550, § 2(part), 1989; Ord. No. 60124, § 2(part), 1986; Ord. No. 59069, § 3, 1984.)

17.76.030 Nonresidential disabled parking space permit—Application.

A. The owner or manager of any public or private building providing less than twenty-five (25) parking spaces may apply to the Office on the Disabled for an on-street, nonresidential disabled parking space permit. Upon approval of the application and payment of one hundred dollars ($100.00) to the Office on the Disabled to cover costs of installation and maintenance of appropriate signs, a nonresidential disabled parking space shall be established indicating such restricted parking. Nonresidential disabled parking spaces shall be renewed annually as provided in Section 17.76.035.

B. The charge for the installation and maintenance of signs required in Subsection A of this section shall not apply to not-for-profit organizations. (1994 C., § 17.76.030; Ord. No. 63590, § 2(part), 1995; Ord. No. 61550, § 2(part), 1989; Ord. No. 60124, § 2(part), 1986; Ord. No. 58590, § 3, 1982.)

17.76.035 Nonresidential disabled parking space permit—Renewal and fee.

Any nonresidential disabled parking space established under Section 17.76.030 shall be renewable by payment of a one hundred dollar ($100.00) renewal fee to the Office on the Disabled. Said fee must be paid by January 31 of each permit year. (1994 C., § 17.76.035; Ord. No. 63590, § 2(part), 1995; Ord. No. 61550, § 2(part), 1989.)

17.76.040 Penalty for violation.

Any person found guilty of parking in violation of Section 17.76.010 shall be fined not less than fifty dollars ($50.00) or more than two hundred dollars ($200.00). (1994 C., § 17.76.040; Ord. No. 63590, § 2(part), 1995; Ord. No. 61550, § 2(part), 1989; Ord. No. 60124, § 2(part), 1986; Ord. No. 58590, § 4, 1982.)

17.76.050 Parking meter exemption—Permit issuance standards.

The Commissioner on the Disabled is hereby authorized to set standards for the issuing of a permit to any person owning a motor vehicle and having a permanent disabled placard, disabled license plate or disabled veteran's license plate issued by the State of Missouri, and unable to activate a parking meter because of a physical disability. (1994 C., § 17.76.050; Ord. No. 63590, § 2(part), 1995; Ord. No. 61128, § 1, 1988.)

17.76.060 Parking meter exemption—Disabled permit required.

Any driver of a motor vehicle who has received a permit under Section 17.76.050, and has it prominently displayed on the motor vehicle with their permanent disabled placard or disabled license plate or disabled veteran's license plate, may park at a parking meter without activating the parking meter. (1994 C., § 17.76.060; Ord. No. 63590, § 2(part), 1995; Ord. No. 61128, § 2, 1988.)

17.76.070 Parking meter exemption—Appeal of permit refusal.

Any person that has been refused a parking meter exemption permit under Section 17.76.060 may appeal the decision of the Commissioner on the Disabled by sending a letter to the Parking Meter Commission stating the reasons why the decision is in error. The appeal must be mailed within ten (10) days of the date of the refusal notice. The Parking Meter Commission shall notify the appellant of the hearing date, which shall occur within two weeks of the date of the original appeal letter. The Parking Meter Commission shall render a decision within one week of the hearing. (1994 C., § 17.76.070; Ord. No. 63590, § 2(part), 1995; Ord. No. 61128, § 3, 1988.)

17.76.080 Personal residence—Permit issuance.

Upon request, the Office on the Disabled shall issue a permit to an owner of a vehicle that has been issued a disabled license plate or placard by the state and who has a disabled parking space in front of their

residence issued pursuant to City ordinance. The permit should be posted on the windshield of said vehicle and shall show the address of the residence where the disabled parking space is located. (1994 C., § 17.76.080; Ord. No. 65142, § 2(part), 2001; Ord. No. 63103, § 1, 1993.)

17.76.090 Personal residence—Posting of signs.

Upon the issuance of said permit, the Office on the Disabled shall notify the Traffic and Transportation Administrator who shall post on the signs indicating disabled parking only a sign indicating the disabled parking space is reserved at all times for permit parking only. (1994 C., § 17.76.090; Ord. No. 65142, § 2(part), 2001; Ord. No. 63103, § 2, 1993.)

17.76.100 Personal residence—No parking without permit.

No person shall park a vehicle in a permit disabled parking space unless said vehicle has posted on its windshield a permit issued by the Office on the Disabled for that specific disabled parking space. (1994 C., § 17.76.100; Ord. No. 65142, § 2(part), 2001; Ord. No. 63103, § 3, 1993.)

17.76.110 Removal of any residential disabled parking space and cancellation of permit.

A. Any residential disabled parking permit and space shall be removed by the Streets Department directed by the Office on the Disabled for any of the following reasons:

1. Permitted vehicle is not parking in the space at least five (5) days and nights each week.

2. Space holder is using off-street parking.

3. Non-permitted vehicle owned by the permitted space holder is parking in the space.

4. Space holder has died, moved, or no longer has an eligible disability.

5. Space holder erects, builds or has suitable off-street parking available.

6. Space holder's residence is declared a nuisance property.

B. The Office on the Disabled shall document the reasons for any removal and inform the permitted space holder by certified mail of any decision to remove the space and cancel the permit. Once the space is removed and the permit is cancelled, the otherwise eligible resident will be eligible to reapply for the permit and space no sooner than six (6) months after removal/cancellation. (1994 C., § 17.76.110; Ord. No. 67757, § 2, 2007.)

Chapter 17.77

SPACE REQUIREMENTS FOR DISABLED PARKING

Sections:

17.77.010 Parking spaces for persons with disabilities.

17.77.020 Location and marking.

17.77.030 Improper use of spaces—Penalty.

17.77.010 Parking spaces for persons with disabilities.

The required minimum number, location and size of disabled parking spaces on parking lots open to and usable by the public shall comply with the current City of St. Louis Building Code and Zoning Code. (1994 C., § 17.77.010; Ord. No. 65142, § 3, 2001; Ord. No. 63590, § 3(part), 1995; Ord. No. 61550, § 3(part), 1989; Ord. No. 60124, § 3(part), 1986; Ord. No. 58882, § 1, 1983.)

17.77.020 Location and marking.

On-street parking spaces reserved for persons with disabilities shall be provided and located nearest curb cuts or accessible entrances to buildings. Where meters are in force, each space shall be marked with a sign attached to the meter clearly identifying the space with the international symbol of access and the words "Disabled Parking." (1994 C., § 17.77.020; Ord. No. 63590, § 3(part), 1995; Ord. No. 61550, § 3(part), 1989; Ord. No. 60124, § 3(part), 1986.)

17.77.030 Improper use of spaces—Penalty.

Only vehicles displaying the Missouri disabled license plate placard, Missouri disabled veterans license plate or other state disabled license plate or placard shall utilize these spaces for persons with disabilities. Any person found guilty of parking in violation of Section 17.76.010 shall be fined not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00). (1994 C., § 17.77.030; Ord. No. 63590, § 3(part), 1995; Ord. No. 61550, § 3(part), 1989; Ord. No. 60124, § 3(part), 1986.)

Chapter 17.78

VEHICLE NOISE

Sections:

17.78.010 Definitions.

17.78.020 Sound measurement.
17.78.030 Excessive noise prohibited.
17.78.040 Violations designated.
17.78.050 Exemptions.
17.78.060 Penalty for violation.
17.78.070 Lindell Boulevard and Newstead Avenue—Restrictions.
17.78.080 Lindell Boulevard and Newstead Avenue—Exemptions.
17.78.090 Sign placement.
17.78.100 Penalty for violation.

17.78.010 Definitions.

Unless otherwise expressly stated or the contents clearly indicate a different intention, the following terms shall have the meaning shown:

A. "dBA" means the composite abbreviation for A-weighted sound level, and the unit of sound level, the decibel.

B. "Gross vehicle weight rating" or "GVWR" means the value specified by the manufacturer as a loaded weight of a single vehicle.

C. "Muffler or sound dissipative device" means a device for abating the sound of escaping gases of an internal combustion engine.

D. "Sound level" means the A-weighted sound pressure level measured with a fast response using an instrument complying with specifications for sound level meters of the American National Standards Institute, Inc. (ANSI SI.4-1971 or the latest approved revision thereof) or its successor bodies, except that only A-weighting and fast dynamic response need be provided.

E. "Sound level meter" will mean an apparatus or instrument including a microphone, amplifier, attenuator, output meter frequency weighting networks for the measurement of sound levels. (1994 C., § 17.78.010; Ord. No. 58602, § 1, 1982.)

17.78.020 Sound measurement.

A. The City shall adopt procedures which set forth criteria for the measurement of sound. Such procedures shall be revised from time to time to reflect current engineering judgment and advances in noise measurement techniques.

B. The City may provide for measurement at distances other than the 50 feet specified provided that correction factors are applied so that the sound levels so determined are substantially equivalent to those measured at 50 feet and measurement distance does not exceed 100 feet. The correction factors used shall be consistent with California Highway Patrol Sound Measurement Procedures HPH 83.1. (1994 C., § 17.78.020; Ord. No. 58602, § 2, 1982.)

17.78.030 Excessive noise prohibited.

It shall be unlawful for any person to operate or cause to be operated a motor vehicle or motorcycle on a public right-of-way at any time in such a manner that the sound level emitted by the motor vehicle or motorcycle exceeds the level set forth herein for the speed limit zone, regardless of the actual speed of the motor vehicle or motorcycle or any other manner prohibited by this section.

	Sound Level in dBA	
Vehicle Class	**Speed Limit 35 mph or Less**	**Speed Limit Over 35 mph**
Any motorcycle	82	86
Any other passenger car and/or other vehicles of GVWR of 10,000 lbs. or less	76	82

(1994 C., § 17.78.030; Ord. No. 58602, § 3, 1982.)

17.78.040 Violations designated.

The following acts or the causing thereof are declared to be in violation of this chapter:

A. The sounding of any horn, or other auditory signaling device on or in any motor vehicle or motorcycle on any public right-of-way or public space, except as a warning of danger;

B. The sounding of any horn or other auditory signaling device which produces the sound level in excess of 85 dBA at 15 meters (50 feet), except as a warning of danger;

C. The operating of, or causing to be operated, any motor vehicle or motorcycle not equipped with a muffler or other sound dissipative device in good working order and in constant operation;

D. The removing and rendering inoperative, or causing to be removed or rendered inoperative, other than for purposes of maintenance, repairs or replacement, any muffler sound dissipative device on a motor

vehicle or motorcycle. (1994 C., § 17.78.040; Ord. No. 58602, § 4, 1982.)

17.78.050 Exemptions.

The following are exempt from the operation of this chapter:

A. Emergency vehicles, designated as such by the state or City, and ambulances on emergency call;

B. Construction or agricultural equipment and street maintenance equipment that are on a job site or traveling on streets and highways. (1994 C., § 17.78.050; Ord. No. 58602, § 5, 1982.)

17.78.060 Penalty for violation.

Any person found guilty of violating any provision of this chapter shall be punished as provided by Section 1.12.010 of this Code. (1994 C., § 17.78.060; Ord. No. 58602, § 7, 1982.)

17.78.070 Lindell Boulevard and Newstead Avenue—Restrictions.

No person shall operate or permit the operation of any engine or motor providing motive power to a commercial vehicle with a gross vehicle weight in excess of ten thousand (10,000) pounds, or any auxiliary engine or motor located on such vehicle, while such vehicle is parked or standing on Lindell Boulevard between Newstead Avenue and Taylor Avenue or on Newstead Avenue between West Pine Boulevard and Maryland Avenue. (1994 C., § 17.78.070; Ord. No. 61303, § 1 1989.)

17.78.080 Lindell Boulevard and Newstead Avenue—Exemptions.

Section 17.78.070 shall not apply to:

A. A vehicle in the process of delivering or picking up loads during such period of time as operation of the engine or motor is necessary to operate equipment used to load or unload the vehicle;

B. A vehicle stopped in a traffic lane because of traffic congestion;

C. A vehicle in the process of loading or unloading passengers; or

D. A vehicle with a refrigeration compartment which is in the processing of delivering perishable commodities; however, this exemption shall not apply to a vehicle if the engine or motor is being operated solely for the purpose of air-conditioning the passenger compartment of such vehicle. (1994 C., § 17.78.080; Ord. No. 61303, § 2, 1989.)

17.78.090 Sign placement.

The Traffic Administrator shall have such signs made as are necessary for purposes of enforcing this chapter. He shall cause such signs to be placed in a manner calculated to give adequate notice of the provisions of this chapter to the public. (1994 C., § 17.78.090; Ord. No. 61303, § 2, 1989.)

17.78.100 Penalty for violation.

No person, firm, partnership or corporation shall operate a vehicle in violation of the provisions of this chapter. Any person, firm, partnership or corporation that violates this chapter shall, upon conviction thereof, be punished by a fine of not less than fifty dollars ($50.00) or more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days, or by both such fine and imprisonment. Each day a violation exists shall be considered a separate offense. (1994 C., § 17.78.100; Ord. No. 61303, § 2, 1989.)

Chapter 17.79

PARKING FOR NEIGHBORHOOD STABILIZATION OFFICERS AND BUSINESS ASSISTANCE SPECIALISTS

Sections:

17.79.010 Allowed in no parking zones—Exceptions.

17.79.020 Authorized placard display required—Exclusive issuance—Ticket cancellation.

17.79.030 Placard to display ordinance number—Duplication prohibited.

17.79.010 Allowed in no parking zones—Exceptions.

The Neighborhood Stabilization Officers as designated by the Director of the Neighborhood Stabilization Office and the Business Assistance Specialists as designated by the Director of the Business Assistance Center, when on official duty, shall be allowed to park, without payment of fees, at any parking meter or contrary to posted "No Parking" zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, wheelchair ramps, within 30 feet of a curb line of any intersection, nor within disabled parking spaces unless the vehicle displays a permanent Missouri placard or license plate for the disabled. (1994 C., § 17.79.010; Ord. No. 64461, § 1, 1998.)

17.79.020 Authorized placard display required—Exclusive issuance—Ticket cancellation.

Each authorized individual shall display one (1) placard, approved by the Director of their respective departments, in either the front or rear window of private or City vehicles, to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets, in accordance with this chapter, during normal working hours. Neither the Director of the office of Neighborhood Stabilization nor the Director of the Business Assistance Center shall issue such placards to any person not on the office of Neighborhood Stabilization payroll. The Director of the office of Neighborhood Stabilization and the Director of the Business Assistance Center shall have the authority to request cancellation of parking tickets issued contrary to this chapter. (1994 C., § 17.79.020; Ord. No. 64461, § 2, 1998.)

17.79.030 Placard to display ordinance number—Duplication prohibited.

Each placard shall prominently display the number assigned to the ordinance codified in this chapter by the Register of the City. Any duplication or photocopying of such placards is prohibited. (1994 C., § 17.79.030; Ord. No. 64461, § 3, 1998.)

Chapter 17.80

OVERNIGHT PARKING OF RECREATIONAL VEHICLES

Sections:

17.80.010 Parking facility—Area designated.

17.80.020 Schedule of charges—Disposition of revenue.

17.80.030 Rules and regulations.

17.80.010 Parking facility—Area designated.

The Director of Parks, Recreation and Forestry is hereby authorized to operate as a facility for the overnight parking of recreational vehicles and for parking of such other vehicles as may be deemed by the Director to be appropriate for those areas of the right-of-way leased by the City from the state underneath and alongside the viaduct carrying Interstate Route 70, popularly known as the Poplar Street Bridge, and more particularly described as:

A. *Parcel No. 1.* A parcel of land located in City Block 53 described as follows: Beginning at a corner marking the point of intersection of the northern line of Plum Street (32 feet, 1 inch wide) with the western line of Second Street (38 feet, 6 inches wide); thence northeasterly 275.94 feet as measured along said western street line and its northeasterly prolongation thereof; thence westerly 217.00 feet after turning an angle of 87 degrees 30 minutes to the left; thence southwesterly 258.33 feet after turning an angle of 66 degrees 45 minutes to the left; thence southeasterly 220.00 feet after turning an angle of 107 degrees 15 minutes to the left; thence southerly 12 feet after turning an angle of 68 degrees 00 minutes to the right to a point in the said northern line of Plum Street; thence southeasterly along said northern street line to the point of beginning, containing 71,386 square feet, more or less.

B. *Parcel No. 2.* A parcel of land located in City Block 40, described as follows: Beginning at a point in the southern line of Poplar Street (32 feet 1 inch wide), said point being 159 feet westerly of a corner marking the point of intersection of the said southern line of Poplar Street with the western line of First Street (38 feet, 6 inches wide), as measured along said southern street line; thence easterly along said southern street line 159 feet to said corner; thence southwesterly 131.69 feet as measured along said western street line; thence southwesterly along the arc of a curve to the right having a radius of 563.36 feet to a point in the northern line of Plum Street (32 feet 1 inch wide), said point being 117 feet westerly of a corner marking the point of intersection of the said northern line of Plum Street with the said western line of First Street as measured along said northern street line of First Street as measured along said northern street line; thence westerly 212.50 feet as measured along said northern street line to the point of intersection with the eastern line of Second Street (38 feet 6 inches wide); thence northeasterly 278.85 feet as measured along said eastern street line and its northeasterly prolongation thereof; thence easterly 30 feet after turning an angle of 94 degrees 00 minutes to the right; thence extending southeasterly along the arc of a curve to the left, having a radius of 839.02 feet to the point of beginning containing 80,449 square feet, more or less. (1994 C., § 17.80.010; Ord. No. 58765, § 1, 1983.)

17.80.020 Schedule of charges—Disposition of revenue.

The Director of Parks, Recreation and Forestry is hereby authorized to establish and impose a schedule of

charges for the use of this facility, such charges to be established and levied in the same manner as for the existing Riverfront Parking lot, which this facility is an expansion of. All revenues collected from the operation of said lot shall be paid over to general revenue; provided, however, that the following shall be provided for prior to such funds being paid over to general revenue: the maintenance of said lot, and salaries of employees necessary to operate said lot, including park keepers and personnel necessary to keep the lot and adjoining wharf area clear of debris. The revenues generated from the lot shall be handled in accordance with procedures established by and set out in the cooperative agreement of March 1, 1956, as amended with the United States Department of Interior, National Park Service, for the operation of the Riverfront Parking lot, a copy of which is appended to the ordinance codified in this chapter and hereby incorporated by reference, with the exception that any excess revenues shall be paid into general revenue. (1994 C., § 17.80.020; Ord. No. 58765, § 2, 1983.)

17.80.030 Rules and regulations.

The Director of Parks, Recreation and Forestry is hereby authorized to promulgate rules and regulations necessary for the safe, efficient conduct and use of the facility. (1994 C., § 17.80.030; Ord. No. 58765, § 3, 1983.)

Chapter 17.82

CHILD PASSENGER RESTRAINT SYSTEMS

RSMo:

RSMo 307.179 (2016) Child restraint systems

Sections:

17.82.010 Required.
17.82.020 Public carriers exempted.
17.82.030 Penalty for violation.
17.82.040 Liability limitations.

17.82.010 Required.

Every person transporting a child under the age of four years in a motor vehicle within the City of St. Louis shall provide for the protection of such child. Such children shall be protected by a child passenger restraint system approved by the Missouri Department of Public Safety. (1994 C., § 17.82.010; Ord. No. 64259, § 2(1), 1997; Ord. No. 59123, § 1(a), 1984.)

17.82.020 Public carriers exempted.

The provisions of this chapter shall not apply to any public carrier for hire. (1994 C., § 17.82.020; Ord. No. 64259, § 2(2), 1997; Ord. No. 59123, § 1(c), 1984.)

17.82.030 Penalty for violation.

Each driver who is found guilty or enters a plea of guilty to a violation of this chapter may be punished by a fine of not more than twenty-five dollars and court costs. (1994 C., § 17.82.030; Ord. No. 64259, § 2(3), 1997; Ord. No. 59123, § 1(b), 1984.)

17.82.040 Liability limitations.

In no event shall failure to employ a child passenger restraint system required by Section 17.82.010 provide the basis for a claim of criminal or civil liability or be admissible as evidence in the trial of any civil or criminal action, other than a prosecution for violation of this chapter. (1994 C., § 17.82.040; Ord. No. 64259, § 2(4), 1997; Ord. No. 59123, § 2, 1984.)

Chapter 17.83

WIRELESS TELEPHONES

Sections:

17.83.010 Definition.
17.83.020 Prohibited.
17.83.030 Exception.

17.83.010 Definition.

As used in this chapter, "wireless telephone" means a device that is capable of transmitting or receiving telephonic communications without a wire connecting the device to the telephone network. (1994 C., § 17.83.010; Ord. No. 67073, § 1, 2005.)

17.83.020 Prohibited.

A person who holds a temporary instruction permit issued under RSMo 302.130 or 577.510(2) may not drive a vehicle while using a wireless telephone. (1994 C., § 17.83.020; Ord. No. 67073, § 2, 2005.)

Editor's Note:

RSMo 577.510 has been transferred to RSMo 302.410.

17.83.030 Exception.

This chapter does not apply to a person using a wireless telephone for emergency purposes, including, but not limited to, an emergency call to a law enforcement agency, health care provider, Fire Department, or other emergency services agency or entity. (1994 C., § 17.83.030; Ord. No. 67073, § 3, 2005.)

Chapter 17.84

SAFETY BELTS

RSMo:

RSMo 307.178 (2016) Seat belts

Sections:

17.84.010 Passenger car defined.
17.84.020 Safety belts required.
17.84.030 Penalty for violation.

17.84.010 Passenger car defined.

As used in this chapter, the term "passenger car" means every motor vehicle designed for carrying ten persons or less and used for the transportation of persons; except that, the term "passenger car" shall not include motorcycles, motorized bicycles, motor tricycles and trucks with a licensed gross weight of twelve thousand pounds or more. (1994 C., § 17.84.010; Ord. No. 64259, § 3(1), 1997; Ord. No. 60668, § 1, 1988.)

17.84.020 Safety belts required.

A. Each driver, except persons employed by the United States Postal Service while performing duties for that federal agency which require the operator to service postal boxes from their vehicles, or which require frequent entry into and exit from their vehicles, and front seat passenger of a passenger car manufactured after January 1, 1968, operated on a street or highway in this City, and persons less than eighteen years of age operating or riding in a truck, as defined in RSMo 301.010, on a street or highway of this City shall wear a properly adjusted and fastened safety belt that meets federal National Highway, Transportation and Safety Act requirements; except that, a child less than four years of age shall be protected as required in RSMo. 307.179. No person shall be stopped, inspected, or detained solely to determine compliance with this section. The provisions of this section shall not be applicable to persons who have a medical reason for failing to have a safety belt fastened about their body, nor shall the provisions of this section be applicable to persons while operating or riding a motor vehicle being used in agricultural work-related activities. Noncompliance with this subsection shall not constitute probable cause for violation of any other provision of law.

B. Each driver of a motor vehicle transporting a child four years of age or more, but less than sixteen years of age, shall secure the child in a properly adjusted and fastened safety belt.

C. If there are more persons than there are safety belts in the enclosed area of a motor vehicle, then the driver and passengers are not in violation of this section. (1994 C., § 17.84.020; Ord. No. 64259, § 3(2—4), 1997: Ord. No. 60668, § 2, 1988.)

17.84.030 Penalty for violation.

Each driver who is found guilty or enters a plea of guilty to a violation of this section shall be assessed a fine not to exceed ten dollars. All other provisions of law and court rules to the contrary notwithstanding, no court costs shall be imposed on any person due to a violation of this chapter. In no case shall points be assessed against any person, pursuant to RSMo 302.302, for a violation of this chapter. (1994 C., § 17.84.030; Ord. No. 64259, § 3(5), 1997: Ord. No. 60668, § 3, 1988.)

Chapter 17.86

BRIDGE TOLL GATES

Sections:

17.86.010 Payment of toll required.
17.86.020 Penalty for violation.

17.86.010 Payment of toll required.

It shall be unlawful for any driver of any vehicle to drive across any toll bridge without the payment of the proper toll. (1994 C., § 17.86.010; Ord. No. 61816, § 1, 1990.)

17.86.020 Penalty for violation.

Any driver found guilty of such violation shall be fined not less than twenty dollars ($20.00) nor more than one hundred dollars ($100.00) upon conviction. (1994 C., § 17.86.020; Ord. No. 61816, § 2, 1990.)

Chapter 17.88

PARKING-STACKING DEVICES

Sections:

17.88.010 Definitions.
17.88.020 Prohibited.

17.88.010 Definitions.

As used in this chapter the term "parking-stacking device" means any device or machine which can be used for the vertical stacking of parked motor vehicles while utilizing only a single parking space, thereby allowing parking of one or more additional motor vehicles above

a single motor vehicle parked on a surface or floor. (1994 C., § 17.88.010; Ord. No. 61987, § 1, 1990.)

17.88.020 Prohibited.

No person shall install or use any parking-stacking device in the City except for licensed car dealership lots or residential garages. (1994 C., § 17.88.020; Ord. No. 61987, § 2, 1990.)

Chapter 17.90

CENTRAL WEST END NORTH RESIDENTIAL PARKING DISTRICT

Sections:

17.90.010 Definitions.
17.90.020 Designation of residential parking zones.
17.90.030 Permit use.
17.90.040 Permit issuance.
17.90.050 Penalty for violation.

17.90.010 Definitions.

A. "The Central West End North Residential Parking District" is the area bounded on the west by Kingshighway Boulevard, bounded on the north by the South Alley of Delmar Boulevard, bounded on the east by Taylor Avenue, and bounded on the south by Lindell Boulevard.

B. "Parking permit" is a valid resident or visitor parking permit issued for the Central West End North Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street or part thereof within the boundaries of the Central West End North Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.90.010; Ord. No. 62036, § 1, 1990.)

17.90.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the Central West End North Residential Parking District where a street or a portion of a street, on which the predominant land use is zoned A through E and sixty-five percent (65%) of the registered voters living on said street indicate by petition that they desire the street to be made a residential parking zone and when the Alderman or Aldermen from the ward or wards, wherein the street is located, indicate that they desire the designation. (1994 C., § 17.90.020; Ord. No. 62036, § 2, 1990.)

17.90.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day, no person, firm or corporation shall park or cause to be parked any vehicle that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting curb parking to certain amounts of time during certain hours of the day, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.90.030; Ord. No. 62036, § 3, 1990.)

17.90.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for: the procurement, assignment and distribution of said annual parking permits; and the procurement and installation of said signs. (1994 C., § 17.90.040; Ord. No. 62036, § 4, 1990.)

17.90.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Ad-

ministrator for a period not to exceed one year. (1994 C., § 17.90.050; Ord. No. 62036, § 5, 1990.)

Chapter 17.91

HARTFORD STREET RESIDENTIAL PARKING DISTRICT

Sections:

17.91.010 Definitions.

17.91.020 Designation of residential parking zones.

17.91.030 Permit use.

17.91.040 Permit issuance.

17.91.050 Penalty for violation.

17.91.010 Definitions.

"The Hartford Street Residential Parking District" means the area comprising the 3200 Block of Hartford Street bounded on the west by Louisiana Avenue and bounded on the east by Compton Avenue.

"Parking permit" means a valid resident or visitor parking permit issued for the Hartford Street Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

"Resident" means a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

"Residential parking zone" means any street, or any portion of a street, within the boundaries of the Hartford Street Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

"Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.91.010; Ord. No. 64914, § 1, 2000.)

17.91.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the Hartford Street Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned "A" Single-Family Dwelling District, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.91.020; Ord. No. 64914, § 2, 2000.)

17.91.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.91.030; Ord. No. 64914, § 3, 2000.)

17.91.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation of said signs. (1994 C., § 17.91.040; Ord. No. 64914, § 4, 2000.)

17.91.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.91.050; Ord. No. 64914, § 5, 2000.)

Chapter 17.92

WATERMAN/DeGIVERVILLE RESIDENTIAL PARKING DISTRICT

Sections:

17.92.010	**Definitions.**
17.92.020	**Designation of residential parking zones.**
17.92.030	**Permit use.**
17.92.040	**Permit issuance.**
17.92.050	**Penalty for violation.**

17.92.010 Definitions.

A. "The Waterman/DeGiverville Residential Parking District" is the area bounded on the west by Laurel Avenue, bounded on the north by the north alley of Waterman Boulevard/DeGiverville Avenue, bounded on the east by the west alley of DeBaliviere Avenue and its southern prolongation, and bounded on the south by the south alley of DeGiverville Avenue/Waterman Boulevard.

B. "Parking permit" is a valid resident or visitor parking permit issued for the Waterman/DeGiverville Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the Waterman/DeGiverville Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.92.010; Ord. No. 63512, § 1, 1995.)

17.92.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the Waterman/DeGiverville Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman or Aldermen from the ward or wards, wherein the street is located, indicate that he, she or they recommend(s) the designation. (1994 C., § 17.92.020; Ord. No. 63512, § 2, 1995.)

17.92.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.92.030; Ord. No. 63512, § 3, 1995.)

17.92.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation of said signs. (1994 C., § 17.92.040; Ord. No. 63512, § 4, 1995.)

17.92.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.92.050; Ord. No. 63512, § 5, 1995.)

Chapter 17.93

PARKING IN THE THIRD WARD

Sections:

17.93.010 Designated blocks.

17.93.020 Parking restrictions.

17.93.010 Designated blocks.

Notwithstanding the provisions of Section 831.010(1)(a) and Section 827.100 of Ordinance 57831, approved April 19, 1979, all vehicles may park on either side of the following streets without regard to the direction of traffic:

A. 1500 block of Bremen Avenue;

B. 1900 block of Bremen Avenue;

C. 3800 block of Ashland Avenue;

D. 3800 block of Sullivan Avenue;

E. 3200 block of Palm Avenue;

F. 3500 block of Palm Avenue;

G. 4200 block of North 22nd Street;

H. 3200 block of Harper Street;

I. 3500 block of Harper Street. (1994 C., § 17.93.010; Ord. No. 64010, §§ 1—9, 1997.)

17.93.020 Parking restrictions.

All vehicles parked in accordance with the provisions of Section 17.93.010 shall be so stopped or parked with the right-hand wheels parallel to and within twelve (12) inches of the right-hand curb, or with the left-hand wheels parallel to and within twelve (12) inches of the left-hand curb. (1994 C., § 17.93.020; Ord. No. 64010, § 10, 1997.)

Chapter 17.94

MOTOR VEHICLES USED TO FACILITATE VIOLATIONS

Sections:

17.94.010 To be towed.

17.94.020 Court date.

17.94.030 Conditions for release of vehicle.

17.94.040 Redemption—Disposal.

17.94.010 To be towed.

Any motor vehicle used to assist or in any manner facilitate a violation of any City ordinance relating to auto repair, littering, dumping, prostitution, solicitation for prostitution, or towing when a person or persons have been charged with violating a City ordinance pertaining to said enumerated offenses may be made incapacitated or towed by, or at the request of the Police Department or the City, be driven to the lot that is used for towed motor vehicles. (1994 C., § 17.94.010; Ord. No. 63787, § 1, 1996.)

17.94.020 Court date.

Any person charged with a violation whereby a motor vehicle is being held for evidence pursuant to this chapter shall have a court date within four work days of the violation date. (1994 C., § 17.94.020; Ord. No. 63787, § 2, 1996.)

17.94.030 Conditions for release of vehicle.

Any motor vehicle being held pursuant to this chapter shall only be released upon notification by the warrant officer for municipal violations that the motor vehicle is no longer necessary for prosecution and upon payment of towing and storage charges. (1994 C., § 17.94.030; Ord. No. 63787, § 3, 1996.)

17.94.040 Redemption—Disposal.

If said motor vehicle is not redeemed in the manner and within the time as prescribed by chapter, it can be disposed of in the same manner as an abandoned vehicle. (1994 C., § 17.94.040; Ord. No. 63787, § 4, 1996.)

Chapter 17.95

MARYLAND AVENUE PARKING DISTRICT

Sections:

17.95.010 Definitions.

17.95.020 Designation of residential parking zones.

17.95.030 Permit use.

17.95.040 Permit issuance.

17.95.050 Penalty for violation.

17.95.010 Definitions.

A. "The Maryland Avenue Residential Parking District" is the area bounded on the west by Boyle Avenue, bounded on the north by the north alley of Maryland Avenue, bounded on the east by Whittier Street and bounded on the south by the south alley of Maryland Avenue.

B. "Parking permit" is a valid resident or visitor parking permit issued for the Maryland Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the Maryland Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.95.010; Ord. No. 65211, § 1, 2001.)

17.95.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the Maryland Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.95.020; Ord. No. 65211, § 2, 2001.)

17.95.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.95.030; Ord. No. 65211, § 3, 2001.)

17.95.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation of said signs. (1994 C., § 17.95.040; Ord. No. 65211, § 4, 2001.)

17.95.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense. (1994 C., § 17.95.050; Ord. No. 65211, § 5, 2001.)

Chapter 17.96

PARKING FOR DIVISION OF HEALTH EMPLOYEES

Sections:

17.96.010 Parking without payment of meter—When.

17.96.020 Display of placard.

17.96.010 Parking without payment of meter—When.

Division of Health employees, when on official duty during normal working hours, shall be allowed to park without payment of fees at any parking meter or City-owned facility. (1994 C., § 17.96.010; Ord. No. 63714, § 1, 1996.)

17.96.020 Display of placard.

Each authorized individual shall display in the windshield of a private or City-owned vehicle a placard, approved by the Health Commissioner, to indicate that the individual is on official City business and is exempt from parking meter fees in accordance with Section 17.96.010. (1994 C., § 17.96.020; Ord. No. 63714, § 2, 1996.)

Chapter 17.97

PARKING AROUND MEL CARNAHAN COURTHOUSE

Sections:

17.97.010 Restricted parking area designated.

17.97.020 Display of placards.

17.97.030 Penalty for violation.

17.97.040 Authority to revoke permits.

17.97.010 Restricted parking area designated.

No person, firm, or corporation shall park any vehicle, except for such vehicles owned or operated by individuals designated by the Presiding Judge of the Twenty-Second Judicial Circuit, on the east side of Tucker Boulevard, the south side of Market Street, the west side of 11th Street and the north side of Walnut Street as such streets are appurtenant to City Block 206 North. The provisions of this section shall not apply to any vehicle temporarily stopped at a space currently designated as "disabled drop-off only" or to any permitted vehicle parked in a space designated for the United States Food and Drug Administration. The Director of Streets is authorized to designate no more than three parking spaces on the west side of 11th Street between Walnut Street and Market Street for use by the United States Food and Drug Administration. (1994 C., § 17.97.010; Ord. No. 65309, § 2, 2001.)

17.97.020 Display of placards.

A. Each authorized individual shall display one (1) placard, approved by the Presiding Judge, in the front window of such vehicles, to indicate that the individual is on official court business.

B. Each placard shall prominently display the number assigned to this chapter by the Register of the City of St. Louis. Any duplication or photocopying of such placards which has not been authorized by the Presiding Judge is prohibited. (1994 C., § 17.97.020; Ord. No. 65309, §§ 3, 4, 2001.)

17.97.030 Penalty for violation.

Any person found guilty or entering a plea of guilty of possessing or using an unauthorized duplicate or photocopy of such placard shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). (1994 C., § 17.97.030; Ord. No. 65309, § 5, 2001.)

17.97.040 Authority to revoke permits.

The Director of Streets is directed to revoke any parking permit for the area designated in Section 17.97.010 which does not comply with the provisions of this chapter. (1994 C., § 17.97.040; Ord. No. 65309, § 6, 2001.)

Chapter 17.98

PARKING OF MEDICAL EXAMINERS' VEHICLES

Sections:

17.98.010 Prohibited where.
17.98.020 Placards.
17.98.030 Allowed where.
17.98.040 Display of placards.
17.98.050 Unlawful possession of placards.
17.98.060 Penalties designated.

17.98.010 Prohibited where.

The parking of vehicles, except for vehicles used and designated by the Medical Examiner's Office, is hereby prohibited:

A. On the south side of Clark Street from the east line of 13th Street to a point 103 feet east of the east line of 13th Street;

B. On 13th Street from 15 feet south of the south curb line of Clark Street to a point south along the Medical Examiner's building and extending to the alley; and

C. Along the south side of the Medical Examiner's building, north of the alley, and from the extension of west wall of the building to the alley and to the extension of the east wall of the building to the alley. (1994 C., § 17.98.010; Ord. No. 65599, § 1, 2002.)

17.98.020 Placards.

The Medical Examiner shall issue placards designating the vehicle is being used by the Medical Examiner's Office and said placards shall be conspicuously displayed in any vehicle parked in said restricted area. (1994 C., § 17.98.020; Ord. No. 65599, § 2, 2002.)

17.98.030 Allowed where.

Employees for the Medical Examiner as designated by the Medical Examiner, when on official duty, shall be allowed to park, without payment of fees, at any parking meter or contrary to posted "No Parking" zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, wheelchair ramps, within 30 feet of a curb line of any intersection, nor within disabled parking spaces unless the vehicle displays a permanent Missouri placard or license plate for the disabled. (1994 C., § 17.98.030; Ord. No. 65599, § 3, 2002.)

17.98.040 Display of placards.

Each authorized individual shall display one (1) placard, approved by the Medical Examiner, in either the front or rear window of private or City vehicles, to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets, in accordance with this chapter during normal working hours. The Medical Examiner shall not issue such placards to any person not under the supervision of the Medical Examiner. The Medical Examiner shall have the authority to request cancellation of parking tickets issued contrary to this chapter. (1994 C., § 17.98.040; Ord. No. 65599, § 4, 2002.)

17.98.050 Unlawful possession of placards.

It shall be unlawful for any person to have in their possession, use or display a placard indicating the placard was issued by the Medical Examiner when it was not issued by the Medical Examiner. (1994 C., § 17.98.050; Ord. No. 65599, § 5, 2002.)

17.98.060 Penalties designated.

Any person convicted of a violation of this chapter shall be punished by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than 90 days in jail or both such fine and imprisonment. (1994 C., § 17.98.060; Ord. No. 65599, § 6, 2002.)

Chapter 17.99

PARKING COMMISSION FINANCE CORPORATION

Sections:

17.99.010 Findings and determinations.
17.99.020 Authority.

17.99.010 Findings and determinations.

The Board of Aldermen hereby finds and determines as follows:

A. In furtherance of the general welfare, safety and for the benefit of the City of St. Louis, Missouri, there is hereby authorized, under the terms and conditions provided for herein, the creation of the City of St. Louis Parking Commission Finance Corporation (St. Louis P.C.F.C.");

B. The terms and conditions under which the St. Louis P.C.F.C. shall be created are as follows:

1. The St. Louis P.C.F.C. shall be organized under the general nonprofit law of the State of Missouri for the purpose of engaging in activities which are essentially public in nature, and in particular the development of public parking;

2. None of the income of the St. Louis P.C.F.C. shall inure to any private person;

3. The Parking Commission of the City of St. Louis, acting on behalf of the City of St. Louis, shall have a beneficial interest in the St. Louis P.C.F.C. while the indebtedness authorized herein remains outstanding; and

4. The Parking Commission of the City of St. Louis, acting on behalf of the City of St. Louis, shall receive full legal title to the property of the St. Louis P.C.F.C. with respect to which the indebtedness authorized herein was incurred upon retirement of such indebtedness; and

C. The St. Louis P.C.F.C. is hereby authorized to finance the costs of the acquisition of certain real and personal property located in the Cupples Redevelopment area which includes City Block 434 and 427 in the City of St. Louis, commonly known as the "Cupples Garage and Parking Facilities," by the issuance and negotiated sale by the St. Louis P.C.F.C. of up to $21,000,000.00 principal amount of bonds in one or more series designated as the St. Louis P.C.F.C. Parking Revenue Bonds, Series 2003. (1994 C., § 17.99.010; Ord. No. 65989, § 1, 2003.)

17.99.020 Authority.

The Treasurer of the City of St. Louis, acting in his capacity as Supervisor of Parking, the Parking Commission of the City of St. Louis, and other appropriate officers, agents and employees of the City of St. Louis, including the Mayor and Comptroller, are hereby authorized to take such further actions and execute such other documents as may be necessary or desirable to carry out and comply with the intent of this chapter, and to carry out, comply with and perform the duties of the Parking Commission or the City of St. Louis with respect to the transaction herein authorized. (1994 C., § 17.99.020; Ord. No. 65989, § 2, 2003.)

Chapter 17.100

O'FALLON PARK/WEST FLORISSANT RESIDENTIAL PARKING DISTRICT

Sections:

17.100.010 Definitions.

17.100.020 Designation of residential parking zones.
17.100.030 Permit use.
17.100.040 Permit issuance.
17.100.050 Disabled parking.
17.100.060 Penalty for violation.

17.100.010 Definitions.

A. "The O'Fallon Park/West Florissant Residential Parking District" means the area beginning at the southeast corner of Pope Avenue at its intersection with West Florissant; thence southeast along West Florissant to Harris Street; thence northeast along Harris Street to Algernon Street; thence southeast along Algernon Street to Adelaide Avenue; thence southwest along Adelaide Avenue to Rosalie Street; thence north to Pope Avenue; thence northeast to the point of beginning.

B. "Parking permit" means a valid resident or visitor parking permit issued for the O'Fallon Park/West Florissant Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" means a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" means any street, or any portion of a street, within the boundaries of the O'Fallon/West Florissant Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" means any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.100.010; Ord. No. 66383, § 1, 2004.)

17.100.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the O'Fallon Park/West Florissant Residential Parking District on any street, or any portion of a street, on which the predominant land use is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward wherein the street is located indicates that such Alderman recommends the designation. (1994 C., § 17.100.020; Ord. No. 66383, § 2, 2004.)

17.100.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked by vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.100.030; Ord. No. 66383, § 3, 2004.)

17.100.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation of said signs. This permit shall not guarantee or reserve any parking space, nor shall it exempt the holder from the observance of any traffic parking regulation. (1994 C., § 17.100.040; Ord. No. 66383, § 4, 2004.)

17.100.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space with the O'Fallon Park/West Florissant Residential Parking District. The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.100.050; Ord. No. 66383, § 5, 2004.)

17.100.060 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of

the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.100.060; Ord. No. 66383, § 6, 2004.)

Chapter 17.101

BUCKINGHAM COURT RESIDENTIAL PARKING DISTRICT

Sections:

17.101.010 Definitions.
17.101.020 Designation of residential parking zones.
17.101.030 Permit issuance.
17.101.040 Permit use.
17.101.050 Disabled parking.
17.101.060 Penalty for violation.

17.101.010 Definitions.

A. "The Buckingham Court Residential Parking District" means the area beginning at the west curb line of North Court at the intersection of North Court and West Pine; thence south along the west curb line of North Court to Buckingham Court; thence west along the north and south curb line of Buckingham Court to Laclede Avenue; thence east along the north curb line of Laclede Avenue to its intersection with South Court and shall include the eastern curb line of North Kingshighway from the intersection of Laclede Avenue north to the northern property line of 20 North Kingshighway (Parcel Number 3884.23).

B. "Parking permit" means a valid resident or visitor parking permit issued for the Buckingham Court Residential Parking District by the Supervisor of Parking.

C. "Resident" means a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" means any street, or any portion of a street, within the boundaries of the Buckingham Court Residential Parking District which is designed and posted by the Traffic Administrator as a residential parking zone with specific parking restrictions. (1994 C., § 17.101.010; Ord. No. 70246, §§ 1, 2, 3-22-2016; Ord. No. 66386, § 1, 2004.)

17.101.020 Designation of residential parking zones.

The Traffic Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones on any street or portion of any street within the Buckingham Court Residential Parking District upon the completion of a traffic survey which documents that thirty-three percent (33%) or more of the parked vehicles on a given block within the Buckingham Court Residential Parking District are not owned by the residents. (1994 C., § 17.101.020; Ord. No. 66386, § 2, 2004.)

17.101.030 Permit issuance.

The Traffic Administrator may issue annual parking permits to the residents of the Buckingham Court Residential Parking District. The Traffic Administrator may contract with a Missouri nonprofit corporation, at no cost to the City, for the procurement, assignment, and distribution of such annual parking permits, and the procurement and installation of necessary signage. (1994 C., § 17.101.030; Ord. No. 66386, § 3, 2004.)

17.101.040 Permit use.

When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during any time that does not display a resident parking permit. (1994 C., § 17.101.040; Ord. No. 66386, § 4, 2004.)

17.101.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space within the Buckingham Court Residential Parking District. The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.101.050; Ord. No. 66386, § 5, 2004.)

17.101.060 Penalty for violation.

Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the

provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offence. (1994 C., § 17.101.060; Ord. No. 66386, § 6, 2004.)

Chapter 17.102

LACLEDE-FOREST PARK-NEWSTEAD PARKING DISTRICT

Sections:

17.102.010 Definitions.

17.102.020 Designation of restricted parking zones.

17.102.030 Permit use.

17.102.040 Permit issuance.

17.102.050 Penalty for violation.

17.102.010 Definitions.

A. "The Laclede-Forest Park-Newstead Parking District" is the area defined by the following boundaries:

Starting from the northwestern point of Parcel #3905000090 (4368 Laclede Ave.), traveling east along the south curb line of the 4300 Block of Laclede Avenue and ending at the intersection of Laclede and Boyle; and

Starting from the southwestern point of Parcel #3906008570 (4375 Laclede Ave.), traveling east along the north curb line of Laclede Avenue and ending at the intersection of Laclede and Boyle; and

Starting from the southwestern point of Parcel #3905000415 (4371 Forest Park Ave.), traveling east along the north curb line of Forest Park Avenue and ending at the southeastern point of Parcel #3905000280 (4311 Forest Park Ave.); and

Starting from the southeastern point of Parcel #3901000190 (25 N. Newstead Ave.), traveling north along the west curb line of N. Newstead Avenue and ending at the intersection of Newstead and West Pine.

B. "Parking permit" is a valid parking permit issued for the Laclede-Forest Park-Newstead Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a restricted parking zone.

D. "Restricted parking zone" is any street, or any portion of a street, within the boundaries of the Laclede-Forest Park-Newstead Parking District which is designated and posted by the Traffic and Transportation Administrator as a restricted parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident.

F. "Employee" is any person who is employed at a business abutting a street designated in whole or in part as a restricted parking zone. (1994 C., § 17.102.010; Ord. No. 67528, § 1, 2007.)

17.102.020 Designation of restricted parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of restricted parking zones within the Laclede-Forest Park-Newstead Parking District on any street, or any portion of a street, on which the predominant land used is zoned A or B, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a restricted parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.102.020; Ord. No. 67528, § 2, 2007.)

17.102.030 Permit use.

A. When signs are erected upon streets in restricted parking zones designating "Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display a valid parking permit.

B. When signs are erected upon streets in parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.102.030; Ord. No. 67528, § 3, 2007.)

17.102.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated parking zone. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation

of said signs. (1994 C., § 17.102.040; Ord. No. 67528, § 4, 2007.)

17.102.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.102.050; Ord. No. 67528, § 5, 2007.)

Chapter 17.103

FOREST PARK SOUTHEAST PARKING DISTRICT

Editor's Note:

Ord. No. 71935, §§ 1 and 2, approved November 26, 2024, amended the Code by repealing former Ch. 17.103, §§ 17.103.010—17.103.050, and adding a new Ch. 17.103. Former Ch. 17.103 pertained to the Kentucky and Talmage Residential Parking District, and derived from the 1994 Code, §§ 17.103.010—17.103.050; and Ord. No. 67529, §§ 1—5, approved in 2007.

Sections:

17.103.010 Definitions.

17.103.020 Designation of restricted parking zone.

17.103.030 Permit use.

17.103.040 Disabled parking.

17.103.050 Penalty for violation.

17.103.010 Definitions.

A. "The Forest Park Southeast Parking District" is defined as follows:

1. 4500 block of Chouteau Avenue that is bounded on the west by South Kingshighway Boulevard and bounded on the east by Taylor Avenue.

2. 4400 block of Chouteau Avenue that is bounded on the east by Newstead Avenue and on the west by 4466 Chouteau on the south side of the street and 4431 Chouteau on the north side of the street.

3. 4300 block of Chouteau Avenue only on the southern curbline that is bounded on the east by Tower Grove Avenue and on the west by Newstead Avenue.

4. 4400 and 4500 blocks of Gibson Avenue that is bounded on the east by Newstead Avenue and on the west by South Kingshighway Boulevard.

5. 4100 block of Gibson Avenue that is bounded on the west by Boyle Avenue and bounded on the east by the end of the street.

6. 4500 block of Wichita Avenue that is bounded on the east by Taylor Avenue and on the west by the Wichita Cul De Sac.

7. "Old" South Kingshighway Boulevard that is bounded on the south by Gibson Avenue and on the north by Chouteau Avenue.

8. 1000 and 1100 block of Taylor Avenue that is bounded on the south by Wichita Avenue and on the north by the alley between Gibson Avenue and Chouteau Avenue.

9. 1100 to 1300 blocks of Kentucky Avenue that is bounded on the south by the alley immediately north of Vandeventer Avenue and on the north by the alley south of Manchester Avenue.

10. 1100 block of Talmage Avenue that is bounded on the south by the alley immediately north of Vandeventer Avenue and on the north by the alley south of Manchester Avenue.

B. "Parking permit" is a valid parking permit issued for the "Forest Park Southeast Parking District" by the Parking Division of the Treasurer's Office or its designees.

C. "Resident" is a person who lives in a property abutting a restricted parking zone.

D. "Employee" is any person who is employed at a business abutting a restricted parking zone.

E. "Restricted parking zone" is any street, or any portion of a street, within the boundaries of the "Forest Park Southeast Parking District" which is designated and posted as a restricted parking zone with specific parking restrictions.

F. "Visitor" is any person who is a household guest, a worker performing services for, or domestic help for, a resident or employee.
(Ord. No. 71935, § 2, 11-26-2024)

17.103.020 Designation of restricted parking zone.

The entire Forest Park Southeast Parking District is hereby established as an independent restricted parking zone.
(Ord. No. 71935, § 3, 11-26-2024)

17.103.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Permit Parking Only" during certain hours of the day on certain days as posted on the signage, no person, firm or corporation shall park or cause to be parked any vehicle during any time that is not registered with the city's Parking Division for a parking permit.

B. When signs are erected upon streets in parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm, or corporation shall park or cause to be parked in excess of the posted parking time limit any vehicle that is not registered with the city's Parking Division for a parking permit.
(Ord. No. 71935, § 4, 11-26-2024)

17.103.040 Disabled parking.

The provisions of this section shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance Number 65142, a residential disabled parking permit for any parking space within the "Forest Park Southeast Parking District". The holder of a residential disabled parking permit shall obtain a parking permit pursuant to this section free of charge.
(Ord. No. 71935, § 5, 11-26-2024)

17.103.050 Penalty for violation.

A. Any person, firm, or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this ordinance shall upon the conviction thereof be guilty of a Class Two parking violation for each such offense.

B. Any person, firm, or corporation who shall obtain a resident or visitor parking permit for any person, firm or corporation not eligible to obtain such parking permit shall have his or her parking permits suspended by the Parking Division for a period not to exceed one (1) year.
(Ord. No. 71935, § 6, 11-26-2024)

Chapter 17.104

RESERVED

Editor's Note:

Ord. No. 71935, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 17.104, §§ 17.104.010—17.04.050, which pertained to the 4500 Block of Chouteau Avenue Residential Parking District, and derived from the 1994 Code, §§ 17.104.010—17.104.050; and Ord. No. 67530, § 1, approved in 2007.

Chapter 17.106

FORD BUILDING RESIDENTIAL PARKING DISTRICT

Sections:

17.106.010 Definitions.
17.106.020 Designation of residential parking zones.
17.106.030 Permit use.
17.106.040 Permit issuance.
17.106.050 Disabled parking.
17.106.060 Penalty for violation.

17.106.010 Definitions.

A. "Ford Building" is that certain building located at 1401—1405 Pine Street.

B. "Ford Building Residential Parking District" is the area in and around City Blocks 505, 506, and 499 consisting of the parking spaces on (a) the eastern side of N. 15th Street between Olive Street and Chestnut Street, (b) the northern side of Pine Street between N. 15th Street and N. 13th Street, (c) the southern side of Pine Street between N. 15th Street and N. 14th Street, (d) the western side of N. 14th Street between Pine Street and Chestnut Street, and (e) the northern side of Chestnut Street between N. 15th Street and N. 14th Street.

C. "Parking permit" is a valid resident or visitor parking permit issued for the Ford Building Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis or its designee.

D. "Person" shall mean an individual, company, corporation, partnership, association, or other lawfully created entity.

E. "Property owner" is the person that owns the Ford Building.

F. "Resident" is a person who resides in the Ford Building.

G. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the Ford Building Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

H. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.106.010; Ord. No. 68693, § 1, 6-24-2010)

17.106.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location of, erect signage for, and enforce restrictions for curb parking of residential parking zones within the Ford Building Residential Parking District on any street, or any portion of a street, when the property owner indicates to the Traffic and Transportation Administrator that the property owner desires a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward wherein the street is located indicates that such Alderman recommends the designation. (1994 C., § 17.106.020; Ord. No. 68693, § 2, 6-24-2010)

17.106.030 Permit use.

When signs are erected upon streets in residential parking zones within the Ford Building Residential Parking District designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person shall park or cause to be parked any vehicle during such hours of such days that does not display a valid parking permit. (1994 C., § 17.106.030; Ord. No. 68693, § 3, 6-24-2010)

17.106.040 Permit issuance.

The Traffic and Transportation Administrator may issue parking permits to residents. The Traffic and Transportation Administrator may contract with the property owner, its successor, assignee, or designee, at no cost to the City, for the procurement, assignment, and distribution of the parking permits, and the procurement and installation of necessary signage. (1994 C., § 17.106.040; Ord. No. 68693, § 4, 6-24-2010)

17.106.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic and Transportation Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space within the Ford Building Residential Parking District. The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.106.050; Ord. No. 68693, § 5, 6-24-2010)

17.106.060 Penalty for violation.

A. Any person who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person who shall distribute a parking permit to any person not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.106.060; Ord. No. 68693, § 6, 6-24-2010)

Chapter 17.110

5800 BLOCK OF ST. LOUIS AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.110.010 Definitions.
17.110.020 Designation of residential parking zones.
17.110.030 Permit use.
17.110.040 Permit issuance.
17.110.050 Penalty for violation.

17.110.010 Definitions.

A. "The 5800 Block of St. Louis Avenue Residential Parking District" is the 5800 Block of St. Louis Avenue that is bounded on the east by Goodfellow Boulevard and bounded on the west by Hamilton Avenue.

B. "Parking permit" is a valid resident or visitor parking permit issued for the 5800 Block of St. Louis Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 5800 Block of St. Louis Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.110.010; Ord. No. 68824, § 1, 1-18-2011)

17.110.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the 5800 Block of St. Louis Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.110.020; Ord. No. 68824, § 2, 1-18-2011)

17.110.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.110.030; Ord. No. 68824, § 3, 1-18-2011)

17.110.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 5800 Block of St. Louis Avenue Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.110.040; Ord. No. 68824, § 4, 1-18-2011)

17.110.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.110.050; Ord. No. 68824, § 5, 1-18-2011)

Chapter 17.115

1600 BLOCK OF BELT AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.115.010 Definitions.

17.115.020 Designation of residential parking zones.

17.115.030 Permit use.

17.115.040 Permit issuance.

17.115.050 Penalty for violation.

17.115.010 Definitions.

A. "The 1600 Block of Belt Residential Parking District" is the east side of the 1600 Block of Belt Avenue that is bounded on the north by Cote Brillante Avenue and bounded on the south by Martin Luther King Drive.

B. "Parking permit" is a valid resident or visitor parking permit issued for the east side of the 1600 Block of Belt Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis on Sundays only from 6:00 a.m. to 7:00 p.m.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 1600 Block of Belt Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.115.010; Ord. No. 69436, § 1, 5-30-2013.)

17.115.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the east side of the 1600 Block of Belt Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.115.020; Ord. No. 69436, § 2, 5-30-2013.)

17.115.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.115.030; Ord. No. 69436, § 3, 5-30-2013.)

17.115.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 1600 Block of Belt Avenue Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.115.040; Ord. No. 69436, § 4, 5-30-2013.)

17.115.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.115.050; Ord. No. 69436, § 5, 5-30-2013.)

Chapter 17.120

2200 BLOCK OF THURMAN AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.120.010 Definitions.

17.120.020 Designation of residential parking zones.

17.120.030 Permit use.

17.120.040 Permit issuance.

17.120.050 Penalty for violation.

17.120.010 Definitions.

A. "The 2200 Block of Thurman Avenue Residential Parking District" is the west side of the 2200 Block of Thurman Avenue that is bounded on the north by Cleveland Avenue and bounded on the south by the alleyway bounded by Cleveland Avenue and Shenandoah Avenue.

B. "Parking permit" is a valid resident or visitor parking permit issued for the 2200 Block of Thurman Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 2200 Block of Thurman Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.120.010; Ord. No. 69631, § 1, 12-16-2013.)

17.120.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the 2200 Block of Thurman Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.120.020; Ord. No. 69631, § 2, 12-16-2013.)

17.120.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.120.030; Ord. No. 69631, § 3, 12-16-2013.)

17.120.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 2200 Block of Thurman Avenue Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.120.040; Ord. No. 69631, § 4, 12-16-2013.)

17.120.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.120.050; Ord. No. 69631, § 5, 12-16-2013.)

Chapter 17.125

4200—4400 BLOCKS OF NORTH EUCLID AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.125.010 Definitions.

17.125.020 Designation of residential parking zones.

17.125.030 Permit use.

17.125.040 Permit issuance.

17.125.050 Penalty for violation.

17.125.010 Definitions.

A. "The 4200—4400 Blocks of North Euclid Avenue Residential Parking District" is the 4200—4400 Blocks of North Euclid Avenue that is bounded on the north by Bircher Boulevard and bounded on the south by Penrose Street.

B. "Parking permit" is a valid resident or visitor parking permit issued for the 4200—4400 Blocks of North Euclid Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 4200—4400 Blocks of North Euclid Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.125.010; Ord. No. 69636, § 1, 12-16-2013.)

17.125.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the 4200—4400 Blocks of North Euclid Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.125.020; Ord. No. 69636, § 2, 12-16-2013.)

17.125.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.125.030; Ord. No. 69636, § 3, 12-16-2013.)

17.125.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 4200—4400 Blocks of North Euclid Avenue Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.125.040; Ord. No. 69636, § 4, 12-16-2013.)

17.125.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.125.050; Ord. No. 69636, § 5, 12-16-2013.)

Chapter 17.130

5000 BLOCK OF MAFFITT AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.130.010 Definitions.

17.130.020 Designation of residential parking zones.

17.130.030 Permit use.

17.130.040 Permit issuance.

17.130.050 Penalty for violation.

17.130.010 Definitions.

A. "The 5000 Block of Maffitt Avenue Residential Parking District" is the 5000 Block of Maffitt Avenue that is bounded on the east by North Kingshighway Boulevard and bounded on the west by Norwood Avenue.

B. "Parking permit" is a valid resident or visitor parking permit issued for the 5000 Block of Maffitt Avenue Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 5000 Block of Maffitt Avenue Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.130.010; Ord. No. 69637, § 1, 12-16-2013.)

17.130.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the 5000 Block of Maffitt Avenue Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned A single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.130.020; Ord. No. 69637, § 2, 12-16-2013.)

17.130.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.130.030; Ord. No. 69637, § 3, 12-16-2013.)

17.130.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 5000 Block of Maffitt Avenue Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.130.040; Ord. No. 69637, § 4, 12-16-2013.)

17.130.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.130.050; Ord. No. 69637, § 5, 12-16-2013.)

Chapter 17.135

RESERVED

Editor's Note:

Ord. No. 71935, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 17.135, §§ 17.135.010—17.135.050, which pertained to the Gibson and S. Taylor Avenues Residential Parking District, and derived from Ord. No. 71562, §§ 2—6, approved October 26, 2022.

Chapter 17.140

RESERVED

Editor's Note:

Ord. No. 71935, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 17.140, §§ 17.140.010—17.140.060, which pertained to the Gibson and S. Taylor Avenues Residential Parking District, and derived from the 1994 Code, §§ 17.140.010—17.140.060; and Ord. No. 69794, §§ 1—6, approved July 7, 2014.

Chapter 17.145

4500 GIBSON AVENUE RESIDENTIAL PARK DISTRICT

Sections:

17.145.010 Definitions.
17.145.020 Designation of residential parking zones.
17.145.030 Permit use.
17.145.040 Permit issuance.
17.145.050 Disabled parking.
17.145.060 Penalty for violation.

17.145.010 Definitions.

A. "4500 Gibson Avenue Residential Park District" is the area along the 4500 block of Gibson Avenue, bounded on the east by Taylor Avenue and on the west side by Kingshighway Boulevard.

B. "Parking permit" is a valid resident or visitor parking permit issued for the "4500 Gibson Avenue Residential Park District" by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the "4500 Gibson Avenue Residential Park District" which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.145.010; Ord. No. 69882, § 1, 11-26-2014.)

17.145.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the "4500 Gibson Avenue Residential Park District" upon the completion of a traffic survey which documents that thirty-three percent (33%) or more of the parked vehicles on a given block within the "4500 Gibson Avenue Residential Park District" are not owned by the residents. (1994 C., § 17.145.020; Ord. No. 69882, § 2, 11-26-2014.)

17.145.030 Permit use.

When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during any time that does not display a resident parking permit. (1994 C., § 17.145.030; Ord. No. 69882, § 3, 11-26-2014.)

17.145.040 Permit issuance.

The Traffic Administrator may issue annual parking permits to the residents of the "4500 Gibson Avenue Residential Park District." The Traffic Administrator may contract with a Missouri nonprofit corporation, at no cost to the City, for the procurement, assignment, and distribution of such annual parking permits, and the procurement and installation of necessary signage. (1994 C., § 17.145.040; Ord. No. 69882, § 4, 11-26-2014.)

17.145.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space within the "4500 Gibson Avenue Residential Park District." The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.145.050; Ord. No. 69882, § 5, 11-26-2014.)

17.145.060 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.145.060; Ord. No. 69882, § 6, 11-26-2014.)

Chapter 17.150

4500 WICHITA AVENUE RESIDENTIAL PARK DISTRICT

Sections:

17.150.010 Definitions.
17.150.020 Designation of residential parking zones.
17.150.030 Permit use.
17.150.040 Permit issuance.
17.150.050 Disabled parking.
17.150.060 Penalty for violation.

17.150.010 Definitions.

A. "4500 Wichita Avenue Residential Park District" is the area along the 4500 block of Wichita Avenue and includes the traffic circle, bounded on the east by Taylor Avenue and on the west side by the Wichita Traffic Circle.

B. "Parking permit" is a valid resident or visitor parking permit issued for the "4500 Wichita Avenue Residential Park District" by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the "4500 Wichita Avenue Residential Park District" which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.150.010; Ord. No. 69992, § 1, 6-17-2015.)

17.150.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the "4500 Wichita Avenue Residential Park District" upon the completion of a traffic survey which documents that thirty-three percent (33%) or more of the parked vehicles on a given block within the "4500 Wichita Avenue Residential Park District" are not owned by the residents. (1994 C., § 17.150.020; Ord. No. 69992, § 2, 6-17-2015.)

17.150.030 Permit use.

When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during any time that does not display a resident parking permit. (1994 C., § 17.150.030; Ord. No. 69992, § 3, 6-17-2015.)

17.150.040 Permit issuance.

The Traffic Administrator may issue annual parking permits to the residents of the "4500 Wichita Avenue Residential Park District." The Traffic Administrator may contract with a Missouri nonprofit corporation, at no cost to the City, for the procurement, assignment, and distribution of such annual parking permits, and the procurement and installation of necessary signage. (1994 C., § 17.150.040; Ord. No. 69992, § 4, 6-17-2015.)

17.150.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space within the "4500 Wichita Avenue Residential Park District." The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.150.050; Ord. No. 69992, § 5, 6-17-2015.)

17.150.060 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be guilty of a Class 2 parking violation for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.150.060; Ord. No. 69992, § 6, 6-17-2015.)

Chapter 17.155

2200 BLOCK OF CHEROKEE STREET RESIDENTIAL PARKING DISTRICT

Sections:

17.155.010 Definitions.
17.155.020 Designation of residential parking zones.
17.155.030 Permit use.
17.155.040 Permit issuance.
17.155.050 Penalty for violation.

17.155.010 Definitions.

A. "The 2200 Block of Cherokee Street Residential Parking District" is the north side of the 2200 Block of Cherokee Street that is bounded on the east by thirty-two (32) feet west of Missouri Avenue and bounded on the west by thirty-two (32) feet east of Indiana Avenue.

B. "Parking permit" is a valid resident or visitor parking permit issued for the 2200 Cherokee Street Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis.

C. "Resident" is a person who lives in property abutting a street designated in whole or in part as a residential parking zone.

D. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the 2200

Block of Cherokee Street Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

E. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.155.010; Ord. No. 70051, § 1, 7-16-2015.)

17.155.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location and restrictions for curb parking of residential parking zones within the 2200 Block of Cherokee Street Residential Parking District on any street, or any portion of a street, on which the predominant land used is zoned a single-family dwelling district, when 65 percent of the registered voters living on said street indicate by petition that they desire a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward, wherein the street is located, indicates that such Alderman recommends the designation. (1994 C., § 17.155.020; Ord. No. 70051, § 2, 7-16-2015.)

17.155.030 Permit use.

A. When signs are erected upon streets in residential parking zones designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked any vehicle during such hours of such days that does not display either a resident or visitor parking permit.

B. When signs are erected upon streets in residential parking zones restricting public curb parking to certain amounts of time during certain hours of the day on certain days, no person, firm or corporation shall park or cause to be parked in excess of the prescribed parking time limit any vehicle that does not display either a resident or visitor parking permit. (1994 C., § 17.155.030; Ord. No. 70051, § 3, 7-16-2015.)

17.155.040 Permit issuance.

The Traffic and Transportation Administrator may issue annual parking permits to the residents of any designated residential parking zone. The Traffic and Transportation Administrator may designate an individual or group of individuals residing within the 2200 Block of Cherokee Street Residential Parking District, at no cost to the City, to procure, assign and distribute such annual parking permits, and to procure and install such signs. (1994 C., § 17.155.040; Ord. No. 70051, § 4, 7-16-2015.)

17.155.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be guilty of a Class 2 parking violation for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.155.050; Ord. No. 70051, § 5, 7-16-2015.)

Chapter 17.160

GERHART LOFTS BUILDING RESIDENTIAL PARKING DISTRICT

Sections:

17.160.010 Definitions.
17.160.020 Designation of residential parking zones.
17.160.030 Permit issuance.
17.160.040 Permit use.
17.160.050 Disabled parking.
17.160.060 Penalty for violation.

17.160.010 Definitions.

A. "Gerhart Lofts Building" is that certain building located at 3900—3912 Laclede Avenue and 1—17 South Vandeventer Avenue.

B. "Gerhart Lofts Building Residential Parking District" is the area along the southern side of 3900—3914 Laclede Avenue City Block 3919.04 consisting of the parking spaces between Vandeventer Avenue and Sarah Street.

C. "Parking permit" is a valid resident or visitor parking permit issued for the Gerhart Lofts Building Residential Parking District by the Traffic and Transportation Administrator of the City of St. Louis or its designee.

D. "Person" shall mean an individual, company, corporation, partnership, association, or other lawfully created entity.

E. "Property owner" is the person that owns the Gerhart Lofts Building.

F. "Resident" is a person who resides in the Gerhart Lofts Building.

G. "Residential parking zone" is any street, or any portion of a street, within the boundaries of the Gerhart Lofts Building Residential Parking District which is designated and posted by the Traffic and Transportation Administrator as a residential parking zone with specific parking restrictions.

H. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident. (1994 C., § 17.160.010; Ord. No. 70245, § 1, 3-22-2016.)

17.160.020 Designation of residential parking zones.

The Traffic and Transportation Administrator is hereby authorized to designate the location of, erect signage for, and enforce restrictions for curb parking of residential parking zones within the Gerhart Lofts Building Residential Parking District on any street, or any portion of a street, when the property owner indicates to the Traffic and Transportation Administrator that the property owner desires a street, or a portion of a street, to be made a residential parking zone and when the Alderman from the ward wherein the street is located indicates that such Alderman recommends the designation. (1994 C., § 17.160.020; Ord. No. 70245, § 2, 3-22-2016.)

17.160.030 Permit issuance.

The Traffic and Transportation Administrator may issue parking permits to residents. The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation, at no cost to the City, for the procurement, assignment, and distribution of the parking permits, and the procurement and installation of necessary signage. (1994 C., § 17.160.030; Ord. No. 70245, § 3, 3-22-2016.)

17.160.040 Permit use.

When signs are erected upon streets in residential parking zones within the Gerhart Lofts Building Residential Parking District designating "Residential Permit Parking Only" during certain hours of the day on certain days, no person shall park or cause to be parked any vehicle during such hours of such days that does not display a valid parking permit. (1994 C., § 17.160.040; Ord. No. 70245, § 4, 3-22-2016.)

17.160.050 Disabled parking.

The provisions of this chapter shall not supersede or diminish the authority of the Traffic and Transportation Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance 65142, a residential disabled parking permit for any parking space within the Gerhart Lofts Building Residential Parking District. The holder of a residential disabled parking permit shall be exempt from the provisions of this chapter. (1994 C., § 17.160.050; Ord. No. 70245, § 5, 3-22-2016.)

17.160.060 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a resident or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one year. (1994 C., § 17.160.060; Ord. No. 70245, § 6, 3-22-2016.)

Chapter 17.165

RESERVED

Editor's Note:

Ord. No. 71935, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 17.165, §§ 17.165.010—17.165.050, which pertained to the Chouteau-Newstead Parking District and Taylor-Chouteau-Tower Grove Parking District, and derived from the 1994 Code, §§ 17.165.010—17.165.050; and Ord. No. 70457, §§ 1—5, approved February 8, 2017.

Chapter 17.170

RESERVED

Editor's Note:

Ord. No. 71935, § 1, approved November 26, 2024, amended the Code by repealing former Ch. 17.170, §§ 17.170.010—17.170.060, which pertained to the Talmage Residential Parking District, and derived from Ord. No. 66386, § 3, of 2004; and Ord. No. 70744, §§ 1 and 2, approved March 12, 2018.

Chapter 17.175

5700 WALSH STREET RESIDENTIAL PARKING DISTRICT

Sections:

17.175.010 Definitions.

17.175.020 District established.

17.175.030 Designation of restricted parking zone.

17.175.040 Permit use.

17.175.050 Permits.

17.175.060 Penalty for violations.

17.175.010 Definitions.

District means the 5700 Walsh Street Residential Parking District, which is the area along the north curb line of 5700 block of Walsh Street, beginning immediately west of Wherry Avenue and continuing west along the north curb line of the 5700 block of Walsh Street to the east curb line of Hampton Avenue; and is the area along the south curb line of the 5700 block of Walsh Street, beginning immediately west of Wherry Avenue and continuing west along the south curb line of the 5700 block of Walsh Street to the east curb line of Hampton Avenue.

Parking permit means a valid parking permit issued separately for the District by the Traffic and Transportation Administrator of the City of St. Louis or its designees.

Resident means a person who resides in a dwelling located at within the District.

Restricted parking zone means the sections and portions within the 5700 Walsh Street Residential Parking District which are designated and posted as a restricted parking zone with specific parking restrictions.

Visitor means any person who is a household guest, a visitor, a worker performing services or domestic help for a resident. (Ord. No. 71357, § 1, 7-2-2021.)

17.175.020 District established.

A residential parking district to be called the 5700 Walsh Street Resident Parking District is hereby established for the following area: the area along the north curb line of the 5700 block of Walsh Street, beginning immediately west of Wherry Avenue and continuing west along the north curb line of the 5700 block of Walsh Street to the east curb line of Hampton Avenue; and the area along the south curb line of the 5700 block of Walsh Street, beginning immediately west of Wherry Avenue and continuing west along the south curb line of the 5700 block of Walsh Street to the east curb line of Hampton Avenue. (Ord. No. 71357, § 2, 7-2-2021.)

17.175.030 Designation of restricted parking zone.

The entire 5700 Walsh Street Gibson Residential Parking District is hereby established as an independent restricted parking zone. (Ord. No. 71357, § 3, 7-2-2021.)

17.175.040 Permit use.

Signs are to be erected in the District designating "Permit Parking Only" which state the following restrictions:

> "5700 Walsh Street Residential Parking District, Restricted Use Parking by Permit Only No person, firm or corporation shall park or cause to be parked any vehicle in the restricted parking zone that does not display a valid parking permit for the 5700 Walsh Street Residential Parking District." (Ord. No. 71357, § 4, 7-2-2021.)

17.175.050 Permits.

Permits may be issued to employees and residents per the following guidelines: For the 5700 Walsh Street Residential Parking District, the Traffic and Transportation Administrator may issue annual permits to residents at an annual rate of $[_____]. The Traffic and Transportation Administrator may contract with an individual or entity at no cost to the City for the procurement, assignment and distribution of said permits, and the procurement and installation of signs. (Ord. No. 71357, § 5, 7-2-2021.)

17.175.060 Penalty for violations.

Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined [_____] ($____.____) for each such offense; and any person, firm or corporation who shall distribute a standard or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have their parking permits suspended by the Traffic and Transportation Administrator for a period of time not to exceed one year. (Ord. No. 71357, § 6, 7-2-2021.)

Chapter 17.180

SKINKER-FAUQUIER PARKING DISTRICT

Sections:

17.180.010 Definitions.

17.180.020 Designation of restricted parking zone.
17.180.030 Permit use.
17.180.040 Permit issuance.
17.180.050 Penalty for violation.

17.180.010 Definitions.

A. The "Skinker-Fauquier Parking District" is defined as follows: The rectangular area comprising of the width of thirty (30) feet of Fauquier Drive as measured from the northern curb of Fauquier Drive toward the southern curb of Fauquier Drive extending along Fauquier Drive from the northwest corner of parcel #58480001500 which has an address of 225 S. Skinker Blvd. extending east to the southeast corner of parcel #58480001500 which has an address of 225 S. Skinker Blvd.; and the rectangular area comprising of the width of eight (8) feet of Skinker Blvd. as measured from the western curb of Skinker Blvd. toward the center of Skinker Blvd. extending along Skinker Blvd. from the southeast corner of parcel #58480001500 which has an address of 225 S. Skinker Blvd extending north to the northeast corner of parcel #58480001500 which has an address of 225 S. Skinker Blvd.

B. "Parking permit" is a valid parking permit issued separately for the district by the Traffic and Transportation Administrator of the City of St. Louis or its designees.

C. "Resident" is a person who lives in a property abutting a restricted parking zone.

D. "Employee" is any person who is employed at a business abutting a restricted parking zone.

E. "Restricted parking zone" is either of the two sections and portions of Skinker Boulevard and Fauquier Drive within the District which is designated and posted as a restricted parking zone with specific parking restrictions.

F. "Visitor" is any person who is a household guest, a visitor, a worker performing services for, or domestic help for, a resident or employee.
(Ord. No. 70914, § 1, 2-14-2019.)

17.180.020 Designation of restricted parking zone.

The entire Skinker-Fauquier Parking District is hereby established as an independent restricted parking zone.
(Ord. No. 70914, § 2, 2-14-2019.)

17.180.030 Permit use.

Signs are to be erected in the District designating "Permit Parking Only" which state the following restrictions: For the Skinker-Fauquier Parking District, restricted use of parking with permit only are to be posted and no person, firm or corporation shall park or cause to be parked any vehicle in the restricted parking zone that does not display a valid parking permit for the Fauquier-Skinker Parking District.
(Ord. No. 70914, § 3, 2-14-2019.)

17.180.040 Permit issuance.

Permits may be issued to employees and residents per the following guidelines:

A. For the Skinker-Fauquier Parking District, the Traffic and Transportation Administrator may issue annual parking permits to:

(1) Employees of business on parcels that abut or are across the street from the district, and

(2) Residents of parcels that abut or are across the street from the district at a rate of zero dollars ($0.00) per annum for residents and employees.

The Traffic and Transportation Administrator may contract with a Missouri nonprofit corporation at no cost to the City for the procurement, assignment and distribution of said annual parking permits, and the procurement and installation of said signs.

(Ord. No. 70914, § 4, 2-14-2019.)

17.180.050 Penalty for violation.

A. Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter shall upon the conviction thereof be fined twenty dollars ($20.00) for each such offense.

B. Any person, firm or corporation who shall distribute a standard or visitor parking permit to any person, firm or corporation not authorized to display such parking permit shall have his or her parking permits suspended by the Traffic and Transportation Administrator for a period not to exceed one (1) year.

(Ord. No. 70914, § 5, 2-14-2019.)

Chapter 17.185

COMMERCIAL VEHICLES PROHIBITED ALONG PART OF WEST PARK AVENUE

Sections:

17.185.010 Definitions.
17.185.020 Restricted right-of-way.
17.185.030 Exception.
17.185.040 Signage.
17.185.050 Violations.

17.185.010 Definitions.

For purposes of this chapter the terms set forth below are defined as follows:

"Commercial vehicle" means a vehicle which is licensed or designed or regularly used for the transportation of freight, merchandise or property, other than non-commercial pickup trucks as defined in Section 17.30.025 of the City's Revised Code of Ordinances, emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles, vehicles making deliveries to addresses near a restricted right-of-way, as such term is defined in this Section 17.185.010, and vehicles with a gross vehicle weight (GVW) of ten thousand (10,000) pounds or greater.

"Restricted right-of-way" means the public streets, alleys, and other public rights-of-way from which commercial vehicles are prohibited by this chapter.

(Ord. No. 71111, § 1, 3-18-2020.)

17.185.020 Restricted right-of-way.

No person shall drive, tow, or move any commercial vehicle along West Park Avenue from the eastern boundary of Hampton Avenue to the eastern boundary of Hugh's Place.

(Ord. No. 71111, § 2, 3-18-2020.)

17.185.030 Exception.

Section 17.185.020 of this chapter shall not be construed as a prohibition against any commercial vehicle which is traveling directly to a destination for loading, unloading, or servicing, if there is no alternative route to said destination on streets and alleys where truck traffic is not prohibited.

(Ord. No. 71111, § 3, 3-18-2020.)

17.185.040 Signage.

The Director of Streets is hereby directed to place signs notifying drivers of the prohibition on commercial vehicles on restricted rights-of-way. Said signs shall be of a conspicuous size and placed in a conspicuous location facing the flow of traffic at the intersections where a restricted right-of-way begins. The notice on said signs shall include the number of the ordinance from which this chapter derives, and shall be substantially in the following form:

PROHIBITED
COMMERCIAL VEHICLES
Except as Authorized By:
Ord. No. 71111

(Ord. No. 71111, § 4, 3-18-2020.)

17.185.050 Violations.

Persons violating this chapter shall be guilty of an ordinance violation, and shall be subject to a fine not to exceed five hundred dollars ($500.00), or a term of imprisonment of not more than ninety (90) days, or both.

(Ord. No. 71111, § 5, 3-18-2020.)

Chapter 17.190

3RD WARD RESIDENTIAL SPEED LIMIT DISTRICT

Sections:

17.190.010 Speed limit established; description of district limits.

17.190.010 Speed limit established; description of district limits.

The maximum posted speed limit for all traffic travelling upon sections of roadways in areas zoned A Single Family Residential District, B Two Family Residential Dwelling District, C Multiple Family Residential Dwelling District, D Multiple Family Residential Dwelling District, and E Multiple Family Dwelling District that are within the area beginning at the point of intersection of Page Blvd. and N Vandeventer Ave., and proceeding westerly along Page Blvd. to north/south alleyway between Whittier St. and Pendleton Ave., and southerly along such alleyway to east/west alleyway between Page Blvd. and Cook Ave., and proceeding westerly along such alleyways to N Newstead Ave., and proceeding northerly along N Newstead Ave. to Page Blvd., and proceeding westerly on Page Blvd. to N Taylor Ave., and proceeding southerly along N Taylor Ave. to Newberry Ter., and proceeding westerly along Newberry Ter. to Walton Ave., and proceeding northerly along Walton Ave. to Newcomb Pl., and proceeding easterly along Newcomb Pl. to Marcus Ave., and proceeding northerly along Marcus Ave. to Cote Brilliante Ave., and proceeding westerly along Cote Brilliante Ave. to N Euclid Ave., and proceeding northerly along N Euclid Ave. to Greer Ave., and proceeding easterly along Greer Ave. to Marcus Ave., and proceeding northerly along Marcus Ave. to an east/west alleyway between Ashland Ct. and Lexington Ave., and proceeding westerly along such alleyway to Shreve Ave., and proceeding northerly along Shreve Ave. to Palm St., and proceeding easterly along Palm St. to Marcus Ave., and proceeding northerly along Marcus Ave. to Palm St., and proceeding easterly along Palm St. to Cora Ave., and proceeding northerly along Cora Ave. to east/west alleyways between Natural Bridge Ave. and Lexington Ave., and proceeding easterly along such alleyway to north/south alleyway, and proceeding southerly along such alleyway to Lexington Ave., and proceeding easterly along Lexington Ave. to N Newstead Ave., and proceeding northerly along N Newstead Ave. to east/west alleyway between Natural Bridge Ave. and W Lexington Ave., and proceeding easterly along such alleyway to Harris Ave., and proceeding northerly along Harris Ave. to Natural Bridge Ave., and proceeding easterly along Natural Bridge Ave. to N Vandeventer Ave. proceeding southerly along N Vandeventer Ave. to Lincoln Ave., and proceeding easterly along Lincoln Ave. to Prairie Ave., and proceeding southerly along Prairie Ave. to Cottage Ave., and proceeding easterly on Cottage Ave. to N Spring Ave., and proceeding southerly on N Spring Ave. to N Market St., and proceeding easterly on N Market St. to Bacon St., and proceeding southerly on Bacon St. to Cass Ave., and proceeding westerly on Cass Ave. to N Grand Ave., and proceeding northerly on N Grand Ave. to Aldine Ave., and proceeding westerly on Aldine Ave. to Prairie Ave., and proceeding northerly on Prairie Ave. to Garfield Ave., and proceeding westerly on Garfield Ave. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to Dr. Martin Luther King Dr., and proceeding westerly along Dr. Martin Luther King Dr. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to the point of beginning, shall be twenty (20) miles per hour unless a lower unless a lower speed limit has been posted by the City of St. Louis Department of Streets. Such area shall be known as the 3rd Ward Residential Speed Limit District.
(Ord. No. 71334, § 1, 4-19-2021.)

Chapter 17.195

OPERATION OF ALL-TERRAIN VEHICLES

Sections:

17.195.010	**Definitions.**
17.195.020	**Operation of motorized recreational vehicles prohibited.**
17.195.030	**Violations of Section 17.195.020.**
17.195.040	**Ordinance posted by motorized recreational vehicle dealers.**
17.195.050	**Motorized recreational vehicle fuel sales.**

17.195.010 Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section:

"All-terrain vehicle" shall mean any motorized vehicle designed and manufactured to travel over unimproved terrain and not intended for highway use, with an unladen dry weight of one thousand five hundred (1,500) pounds or less, travelling on three (3) or more nonhighway tires, with either:

1. A seat designed to be straddled by the operator, and handlebars for steering control, but excluding electric bicycles and motorized bicycles (Defined in RSMo 300.010), motorcycles and EPAMD; or

2. A width of fifty (50) inches of less measured from outside tire rim to outside tire rim, regardless of seating or steering arrangement, but excluding golf carts.

"Dirt bike" shall mean any two-wheeled motorized recreational vehicle designed and manufactured to travel over unimproved terrain and not intended for highway use. Dirt bike does not include all-terrain vehicles.

"EPAMD" shall mean any electric personal assistive mobility device (hereinafter "EPAMD") that is self-balancing, has two (2) non-tandem wheels, is designed to transport one (1) person, and has an electric propulsion system that produces an average power output of no more than seven hundred fifty (750) watts.

"Golf cart" shall mean any motorized vehicle that is designed and manufactured for operation on a golf course or for sporting or recreational purposes that is not capable of exceeding speeds of twenty-five (25) miles per hour.

"Mini-cycle" shall mean pocket bikes, miniature (hereafter "mini") bikes, mini cycles, mini sport bikes, mini motorcycles, chopper scooters, and any other similar wheeled vehicle designed to transport one (1) or more persons that is powered by any type of motor, but excluding electric bicycles and motorized bicycles.

"Motorcycle" shall mean any motorized vehicle having a saddle for use of the rider that is designed to travel on not more than three (3) wheels and intended for highway use.

"Motorized recreational vehicle" shall mean a wheeled vehicle, with a motor, intended to be rode by one (1) or more persons and shall include all-terrain vehicles, mini-cycle and dirt bikes, all as defined herein, but shall not include any of the following:

1. Any nonmotorized vehicle;
2. Any EPAMD;
3. Any registered motorcycle;
4. Any moped or scooter that meets Federal Department of Transportation guidelines for use on streets and is approved by the State of Missouri for use on streets, and provided that the moped or scooter is operated pursuant to all applicable Missouri State and federal laws and regulations, and ordinances;
5. Any wheelchair or similar mobility device used by a person whose ambulatory mobility is impaired due to disability, age, or ailment;
6. Any vehicle owned or leased by the City of St. Louis;
7. Any vehicle used by a business in its normal course of business including, without limitation, lawn and grounds care and maintenance, and security uses;
8. Any vehicle used by special taxing district including, without limitation Community Improvement Districts and Special Business Districts;
9. Any bicycle or trail-bike without a motor;
10. Any golf cart;
11. Any agricultural or lawn and grounds care and maintenance machinery such as tractors;
12. Any construction machinery;
13. Any vehicle that is used solely for amusement, or as a novelty display item, and is operated during a parade or other special event that is properly permitted and approved by the City. Motorized recreational vehicle dealer shall mean official dealers of motorized recreational vehicles and any individuals or entities that are engaged in the selling, leasing or renting motorized recreational vehicles to the public as part of their business.

(Ord. No. 71485, § 1, 3-30-2022.)

17.195.020 Operation of motorized recreational vehicles prohibited.

A. It shall be unlawful for any individual to operate a motorized recreational vehicle or for any owner of a motorized recreational vehicle to knowingly permit the operation of a motorized recreational vehicle by another on any public right-of-way or on any public property in the City of St. Louis.

B. It shall be unlawful for any individual to ride as a passenger on a motorized recreational vehicle or for any owner of a motorized recreational vehicle to knowingly permit any individual to ride as a passenger on a motorized vehicle operated in violation of Subsection A above.

C. It shall be unlawful for any individual to operate a motorized recreational vehicle, or for any owner of a motorized recreational vehicle to knowingly permit the operation of their motorized recreational vehicle on any private property within the City of St. Louis without first obtaining the written permission of the property owner if the property is not owned by the operator, passenger, or owner of the motorized recreational vehicle.

D. It shall be unlawful for any individual allowed to operate a motorized recreational vehicle by a private property owner as provided in Subsection C of this Section 17.195.020, to operate said motorized recre-

ational vehicle on the private property in violation of this chapter or other applicable City of St. Louis Ordinances, or Missouri State and federal laws and regulations.

E. It shall be unlawful for any property owner to knowingly permit the operation of a motorized recreational vehicle on their property in violation of this or other applicable City of St. Louis Ordinances, or Missouri state and federal laws and regulations.

F. No person shall purchase or attempt to purchase gasoline or any other substance or product as fuel for use in a recreational motorized vehicle from a retail gasoline seller located in the City of St. Louis unless the motorized recreational vehicle is conveyed to and from the seller's place of business by a licensed motor vehicle.
(Ord. No. 71485, § 2, 3-30-2022.)

17.195.030 Violations of Section 17.195.020.

A. Any person found to be in violation of Subsections A, C, D, E of F of Section Two above shall be subject to a fine of one hundred dollars ($100.00), and a fine of not more than two hundred and fifty dollars ($250.00) for a second violation within thirty (30) days of the initial violation, and a fine of not more than five hundred dollars ($500.00) for each subsequent violation within the twelve months following the initial violation.

B. Any person age eighteen (18) years of age or older who rides as a passenger on a motorized recreational vehicle who is found to be in violation of Subsection B of Section 17.195.020 above shall be subject to a fine of one hundred dollars ($100.00), and a fine of not more than two hundred fifty dollars ($250.00) for a second violation within thirty (30) days of the initial violation, and a fine of not more than five hundred ($500.00) for each subsequent violation within the twelve (12) months following the initial violation.

C. Any individual suspected of a violation of any provision of Section 17.195.020 above may be detained by a City of St. Louis Division of Police officer purposes of enforcing the provisions of Section 17.195.020, and the motorized recreational vehicle may be seized for purposes of enforcing the same. Subject to applicable Division of Police policies concerning the maintenance and disposal of property seized motorized recreational vehicles shall not be released to any person until they have established proof of ownership.
(Ord. No. 71485, § 3, 3-30-2022.)

17.195.040 Ordinance posted by motorized recreational vehicle dealers.

A. Motorized recreational vehicle dealers shall post a copy of this chapter in a prominent and conspicuous location in their place of business and on their business website if one is maintained.

B. Motorized recreational vehicle dealers found to be in violation of Subsection A above shall receive a written warning from the City's Division of Police for a first infraction. Said written warning shall specify the alleged violation and that the violation must be corrected within ten (10) days following the date of the warning. If the motorized recreational vehicle dealer has not corrected the violation following the expiration of the ten-day time-period they shall be subject to a fine of two hundred fifty dollars ($250.00), and any continuing violation that is discovered during any subsequent reinspection shall be subject to a fine of not more than five hundred dollars ($500.00). Each continued violation discovered during any reinspection shall be considered a separate violation.
(Ord. No. 71485, § 4, 3-30-2022.)

17.195.050 Motorized recreational vehicle fuel sales.

A. No owner or employee of a retail seller of gasoline located in the City of St. Louis shall sell, offer for sale, or attempt to sell gasoline or any other substance or product for use as fuel in any motorized recreational vehicle, unless the motorized recreational vehicle is conveyed to and from the seller's premises by a licensed motor vehicle.

B. Any owner or employee of a retail seller of gasoline located in the City of St. Louis found to be in violation of Subsection A above shall be subject to a fine of two hundred fifty dollars ($250.00), and a fine of not more than five hundred ($500.00) for each subsequent violation within the twelve (12) months following the initial violation.

C. Retail sellers of gasoline located in the City of St. Louis shall post signs with the words "FUELING ALL-TERRAIN VEHICLES, MINI-CYCLES, DIRT-BIKES, OR OTHER UNAUTHORIZED VEHICLE IS PROHIBITED EXCEPT VEHICLES CONVEYED TO AND FROM THE PREMISES BY A LICENSED MOTOR VEHICLE" in letters at least one (1) inch in height with a contrasting margin. Signs shall be conspicuously posted at all fuel dispensing locations. Their

exact locations shall be determined by site conditions, but there must be at least one (1) sign that is readily visible and legible from each fuel pump.

D. Any owner of a retail seller of gasoline located in the City of St. Louis that is discovered to be in violation of Subsection C above shall be subject to a fine of two hundred fifty dollars ($250.00), and a fine of not more than five hundred dollars ($500.00) for each subsequent violation within the twelve (12) months following the initial violation.
(Ord. No. 71485, § 5, 3-30-2022.)

Chapter 17.200

THIRD WARD RESIDENTIAL PARKING DISTRICT

Sections:

17.200.010 Definitions.
17.200.020 District established.
17.200.030 Designation of restricted parking zone.
17.200.040 Signs.
17.200.050 Permits.
17.200.060 Parking.
17.200.070 Permit use.
17.200.080 Penalty for violations.

17.200.010 Definitions.

"District" means the "[Third Ward] Residential Parking District", which is comprised of all sections of roadways in areas zoned A Single Family Residential District, B Two Family Residential Dwelling District, C Multiple Family Residential Dwelling District, D Multiple Family Residential Dwelling District, and E Multiple Family Dwelling District that are within the area specified in Section 17.200.020 of this chapter.

"Parking permit" means a valid parking permit issued separately for the District by the Traffic and Transportation Administrator or the Treasurer of the City of St. Louis or their designees.

"Resident" means a person who resides in a dwelling located at within the District.

"Restricted parking zone" means the sections and portions within the District which are designated and posted as a restricted parking zone with specific parking restrictions.

"Visitor" means any person who is a household guest, a visitor, a worker performing services or domestic help for a resident.
(Ord. No. 71502, § 1, 5-4-2022.)

17.200.020 District established.

A residential parking district to be called the "[Third Ward] Residential Parking District is hereby established and is comprised of all sections of roadways in areas zoned A Single Family Residential District, B Two Family Residential Dwelling District, C Multiple Family Residential Dwelling District, D Multiple Family Residential Dwelling District, and E Multiple Family Dwelling District that are within the area beginning at the point of intersection of Page Blvd and N Vandeventer Ave., and proceeding westerly along Page Blvd to north/south alleyway between Whittier St. and Pendleton Ave., and southerly along such alleyway to east/west alleyway between Page Blvd and Cook Ave., and proceeding westerly along such alleyways to N Newstead Ave., and proceeding northerly along N Newstead Ave. to Page Blvd, and proceeding westerly on Page Blvd to N Taylor Ave., and proceeding southerly along N Taylor Ave. to Newberry Ter., and proceeding westerly along Newberry Ter. to Walton Ave., and proceeding northerly along Walton Ave. to Newcomb Pl., and proceeding easterly along Newcomb Pl. to Marcus Ave., and proceeding northerly along Marcus Ave. to Cote Brilliante Ave., and proceeding westerly along Cote Brilliante Ave. to N Euclid Ave., and proceeding northerly along N Euclid Ave. to Greer Ave., and proceeding easterly along Greer Ave. to Marcus Ave., and proceeding northerly along Marcus Ave. to an east/west alleyway between Ashland Ct and Lexington Ave., and proceeding westerly along such alleyway to Shreve Ave., and proceeding northerly along Shreve Ave. to Palm St., and proceeding easterly along Palm St. to Marcus Ave., and proceeding northerly along Marcus Ave. to Palm St., and proceeding easterly along Palm St. to Cora Ave., and proceeding northerly along Cora Ave. to east/west alleyways between Natural Bridge Ave. and Lexington Ave., and proceeding easterly along such alleyway to north/south alleyway, and proceeding southerly along such alleyway to Lexington Ave., and proceeding easterly along Lexington Ave. to N Newstead Ave., and proceeding northerly along N Newstead Ave. to east/west alleyway between Natural Bridge Ave. and W Lexington Ave., and proceeding easterly along such alleyway to Harris Ave.,

and proceeding northerly along Harris Ave. to Natural Bridge Ave., and proceeding easterly along Natural Bridge Ave. to N Vandeventer Ave. proceeding southerly along N Vandeventer Ave. to Lincoln Ave., and proceeding easterly along Lincoln Ave. to Prairie Ave., and proceeding southerly along Prairie Ave. to Cottage Ave., and proceeding easterly on Cottage Ave. to N Spring Ave., and proceeding southerly on N Spring Ave. to N Market St., and proceeding easterly on N Market St. to Bacon St., and proceeding southerly on Bacon St. to Cass Ave., and proceeding westerly on Cass Ave. to N Grand Ave., and proceeding northerly on N Grand Ave. to Aldine Ave., and proceeding westerly on Aldine Ave. to Prairie Ave., and proceeding northerly on Prairie Ave. to Garfield Ave., and proceeding westerly on Garfield Ave. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to Dr. Martin Luther King Dr., and proceeding westerly along Dr. Martin Luther King Dr. to N Vandeventer Ave., and proceeding southerly along N Vandeventer Ave. to the point of beginning.
(Ord. No. 71502, § 2, 5-4-2022.)

17.200.030 Designation of restricted parking zone.

The District is hereby established as an independent restricted parking zone, and parking shall be by permit only as provided in this chapter.
(Ord. No. 71502, § 3, 5-4-2022.)

17.200.040 Signs.

The Traffic and Transportation Administrator or their designee shall erect signs in the District designating "Permit Parking Only" which shall state the following restrictions:

"Third Ward Residential Parking District, Restricted Use Parking by Permit Only. No Parking Without Valid District Parking Permit. $50.00 Fine for Violations"
(Ord. No. 71502, § 4, 5-4-2022.)

17.200.050 Permits.

Permits may be issued to employees and residents per the following guidelines: For the District, the Traffic and Transportation Administrator or the City of St. Louis Treasurer may issue annual permits to residents for an annual fee. The Traffic and Transportation Administrator or City of St. Louis Treasurer may contract with an individual or entity at no cost to the City for the procurement, assignment and distribution of said permits. Annual permit fees shall not exceed _____ dollars ($____.00).
(Ord. No. 71502, § 5, 5-4-2022.)

17.200.060 Parking.

No person, firm or corporation shall park or cause to be parked any vehicle in the District that does not display a valid resident or visitor parking permit issued in accordance with Section 17.200.050 of this chapter.
(Ord. No. 71502, § 6, 5-4-2022.)

17.200.070 Permit use.

No person, firm or corporation shall distribute or cause to be distributed a standard or visitor parking permit that is not authorized to display such permit
(Ord. No. 71502, § 7, 5-4-2022.)

17.200.080 Penalty for violations.

Any person, firm or corporation who shall park or cause to be parked any vehicle in violation of the provisions of this chapter or distribute or cause to be distributed a standard or visitor parking permit in violation of this chapter shall upon the conviction thereof be fined fifty dollars ($50.00) for each such offense.
(Ord. No. 71502, § 8, 5-4-2022.)

Chapter 17.205

ALLEYS IN KINGSWAY EAST, KINGSWAY WEST, PENROSE, AND MARK TWAIN NEIGHBORHOODS

Sections:

17.205.010 Definitions.
17.205.020 Restriction.
17.205.030 Posting.
17.205.040 Penalty.

17.205.010 Definitions.

Abutting property is defined as that property that is adjacent, touches, joins at the edge or boarders upon or against the alley.

Alley is defined as a lane, path, or passageway, usually used for vehicular traffic, which runs between or behind the property directly abutting the alley, constructed and maintained primarily to provide limited access to abutting residential and commercial property are usually less than twenty (20) feet, and are not intended or designed for use as through streets.

Refuse is defined as item thrown away placed in trash, yard waste, or recyclables City approved containers or Bulk items or other items legally or illegally deposited in alleys.

Through traffic is defined as traffic initiated at *and* destined for points outside the residential or commercial property that abuts the alley.
(Ord. No. 71614, § 1, 1-27-2023.)

17.205.020 Restriction.

No person may operate a motor vehicle on a public alley in the following Neighborhoods: Kingsway East, Kingsway West, Penrose, Mark Twain unless directed to do so by a peace officer, authorized traffic code enforcement personnel or authorized traffic control device, except:

(1) Abutting property owners,

(2) Tenants of the abutting property,

(3) The abutting property owners guests or invitees, or

(4) Federal and state elected officials, and local and party elected officials in the City of St. Louis,

(5) Committee persons in the City of St. Louis,

(6) City of St. Louis Refuse employees collecting refuse in said alleys,

(7) Police, Fire, EMT, and other emergency personnel,

(8) Utility employees servicing customers abutting the alley,

(9) Tow truck drivers servicing a vehicle of one of the abutting properties on the alley.

Those persons listed above must also operate the motor vehicle in the alley in a lawful manner.

This section shall not be interpreted to preclude use of alleys by the following:

(1) Persons performing authorized law enforcement activities on behalf of any law enforcement agency;

(2) Persons providing emergency medical or fire services;

(3) Persons performing public service activities or inspections on behalf of state, federal or city regulatory agencies or departments;

(4) Persons performing installation, maintenance or inspection activities for public or private utility or communications companies; and

(5) Federal and state elected officials, and local and party elected officials in the City of St. Louis.
(Ord. No. 71614, § 2, 1-27-2023.)

17.205.030 Posting.

In order for said ordinance to be effective law, said alley must be posted within three (3) feet of all egresses into the alley on a sign that notifies drivers of vehicles those who are allowed in the alley and those who are prohibited in the alley.
(Ord. No. 71614, § 1, 1-27-2023.)

17.205.040 Penalty.

The person driving a motor vehicle which is stopped, standing, or parked in violation of any section of this ordinance, is guilty of violation of this chapter and subject to as provided by this chapter.

Any person convicted of violating the provisions of this ordinance shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). If a person is convicted of a second violation of this chapter within a five-year period, such person shall be punished by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00). A person convicted of a third violation shall be punished by a fine of not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00). A person convicted of a fourth violation shall be punished by a fine of not less than four hundred dollars ($400.00) nor more than five hundred dollars ($500.00). A person convicted of a fifth or subsequent violation shall be punished by a fine of five hundred dollars ($500.00).

This section does not prohibit or limit the criminal, administrative or civil prosecution of a motor vehicle operator for violating any provision of this chapter.
(Ord. No. 71614, § 1, 1-27-2023.)

Chapter 17.207

PROHIBITING PARKING ON PARTS OF N. EUCLID AVENUE

Sections:

17.207.010 Prohibition.

17.207.010 Prohibition.

The Director of Streets is hereby directed to prohibit parking and or standing on the west side of N. Euclid between St. Louis Avenue and Ashland and the east side of N. Euclid between Ashland and Natural Bridge. Additionally, the Director of Streets is directed to post signs advising that said parking and or standing is prohibited in the above described area.
(Ord. No. 71617, § 1, 1-27-2023.)

Chapter 17.210

TRAFFIC AND PARKING REGULATIONS FOR KINGSHIGHWAY MEMORIAL BOULEVARD

Sections:

17.210.010 Certain trucks prohibited; exceptions.

17.210.020 Parking prohibitions.

17.210.010 Certain trucks prohibited; exceptions.

A. No person shall drive, tow, or move any commercial truck, truck-tractor, tractor, or commercial trailer with a gross vehicle weight (GVW) in excess of twenty-six thousand (26,000) pounds on Kingshighway Memorial Boulevard from the north boundary of Lexington Avenue to south boundary of Dr. Martin Luther King, between the hours of 6:00 p.m. and 8:00 a.m., Monday through Sunday.

B. The provisions of Subsection A of this section shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles, and vehicles with a gross vehicle weight (GVW) of less than twenty-six thousand (26,000) pounds.

(Ord. No. 71618, §§ 1, 2, 1-27-2023.)

17.210.020 Parking prohibitions.

A. No person shall park commercial semi-trailer trucks, cabs for semi-trailer trucks, or the cargo or flat bed parts of semi-tractor trucks, also known as semis, or tractor-trailer trucks, on Kingshighway Memorial Boulevard or on parking lots and or property abutting Kingshighway Memorial Boulevard from the north boundary of West Florissant Boulevard to the south boundary of Dr. Martin Luther King.

B. The provisions of Subsection A of this section shall not apply to emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles.

(Ord. No. 71619, §§ 1, 2, 1-27-2023.)

Chapter 17.215

COMMERCIAL VEHICLE TRAFFIC ALONG MERAMEC STREET

Sections:

17.215.010 Definitions.

17.215.020 Restricted right-of-way.

17.215.030 Signage.

17.215.040 Violations.

17.215.010 Definitions.

For purposes of this chapter the terms set forth below are defined as follows:

"Commercial vehicle" means a vehicle which is licensed or designed or regularly used for the transportation of freight, merchandise, or property, other than non-commercial pickup trucks as defined in Section 17.30.025 of the City's Revised Code of Ordinances, emergency vehicles, including tow trucks when providing emergency service to non-commercial vehicles, delivery vehicles making deliveries to addresses nearby the "restricted right-or-way" as such term is defined in this Section 17.215.010.

"Restricted right-of-way" means the public streets, alleys, and other public rights-of-way on which commercial vehicles are prohibited pursuant to this chapter.

(Ord. No. 71668, § 1, 6-21-2023.)

17.215.020 Restricted right-of-way.

No person shall drive, tow, or move any commercial vehicle on Meramec Street between South Broadway and Grand Boulevard except as otherwise provided in this chapter.

(Ord. No. 71668, § 2, 6-21-2023.)

17.215.030 Signage.

The Director of Streets is hereby directed to place signs notifying drivers of the prohibition on commercial vehicles on the restricted right-of-way. Said signs shall be of conspicuous size and placed in conspicuous locations facing the flow of traffic at the intersections where the restricted right-of-way begins and at other appropriate locations along the restricted right-of-way. The notice on said signs shall include the number of this chapter, and shall be substantially in the following form:

COMMERCIAL VEHICLES PROHIBITED.
Except as Authorized By: Ord. No. 71668

(Ord. No. 71668, § 3, 6-21-2023.)

17.215.040 Violations.

Persons found to be in violation this chapter shall be guilty of an ordinance violation and shall be subject to a fine not to exceed five hundred dollars ($500.00).

(Ord. No. 71668, § 4, 6-21-2023.)

Chapter 17.220

NEIGHBORHOOD TRAFFIC SAFETY IMPROVEMENT FUND

Sections:

17.220.010 Definitions.
17.220.020 Collection of funds.
17.220.030 Usage of funds.
17.220.040 Reporting.

17.220.010 Definitions.

Alleyway speed limit signs means signs in alleyways specifying a reduced speed limit.

Bicycle lane signage means any signage related to bicycle lanes.

Citywide speed limit signs means signs clearly indicating the maximum speed limit for all roads within the city limits.

Crosswalk striping means painted lines indicating the presence of a pedestrian crossing on a roadway.

LED flashing lights on stop signs means a stop sign with blinking LED lights on its perimeter.

Neighborhood Traffic Safety Improvement Fund means a fund where money collected by the City through the courts from tickets for traffic violations as detected by automated traffic control systems shall be deposited, and which shall appropriate those funds to projects that improve neighborhood traffic safety on local roads, minor arterial roads, and minor collector roads.

No parking zone striping means painted lines indicating the prohibition of parking on a portion of a roadway.

Pedestrian crosswalk signals means electronic signs at the ends of pedestrian crosswalks that indicate whether it is safe for a pedestrian to cross the crosswalk.

Roundabouts means a circular intersection or junction in which road traffic is permitted to flow in one (1) direction around a central island.

Speed limit feedback signs means an electronic sign that displays vehicle speeds as motorists approach.

Traffic cameras means video cameras that observe vehicular traffic on roadways.

Variable message signs (VMS) means an electronic sign on roadways to alert motorists about traffic conditions, construction, driving, or other relevant information.

(Ord. No. 71829, § 1, 5-1-2024.)

17.220.020 Collection of funds.

Any revenue received by the City from the courts as a result of automated camera enforcement systems shall be used for purposes pursuant to Section 17.07.110. (Ord. No. 71829, § 2, 5-1-2024.)

17.220.030 Usage of funds.

Funds deposited into the Neighborhood Traffic Safety Improvement Fund shall be spent on projects that improve traffic safety on local roads, minor arterial roads, and minor collector roads. Permitted projects or usage of funds are as follows:

1. Driver's education classes for new youth drivers under age nineteen (19) who are enrolled in public schools located in the City of St. Louis, with priority given to driver's education for new youth drivers under age nineteen (19) who live in HUD qualified census tracts in the City of St. Louis.
2. Citywide speed limit signs;
3. Alleyway speed limit signs;
4. Crosswalk striping;
5. "No parking zone" striping;
6. LED flashing lights on stop signs at high-impact intersections;
7. Speed limit feedback signs;
8. Variable message signs (VMS);
9. Pedestrian crosswalk signals;
10. Traffic cameras;
11. Roundabouts;
12. Bicycle lane signage;
13. Public service announcements.

(Ord. No. 71829, § 3, 5-1-2024.)

17.220.040 Reporting.

Annually, the St. Louis City Street Department shall create a report detailing the disbursements from the Neighborhood Traffic Safety Improvement Fund. This report shall be presented each year to the Public Infrastructure and Utilities Committee and should encompass the following details:

1. The total funds deposited into the Neighborhood Traffic Safety Improvement Fund in the preceding year;
2. A comprehensive list of projects financed through the Neighborhood Traffic Safety Improvement Fund in the preceding year;
3. The allocated expenditure for each individual project; and
4. The current status of each project.

(Ord. No. 71829, § 1, 5-1-2024.)

Chapter 17.225

VISTA AVENUE RESIDENTIAL PARKING DISTRICT

Sections:

17.225.010	**Definitions.**
17.225.020	**Designation of restricted parking zone.**
17.225.030	**Permit use.**
17.225.040	**Disabled parking.**
17.225.050	**Penalty for violation.**

17.225.010 Definitions.

A. Employee. The term "employee" shall mean any person who is employed at a business abutting a restricted parking zone.

B. Parking Permit. A "parking permit" is a valid parking permit issued for the "Vista Avenue Residential Parking District" by the Parking Division of the Treasurer's Office or its designees.

C. Resident. A "resident" is defined as a person who lives in a property abutting a restricted parking zone.

D. Restricted Parking Zone. A "restricted parking zone" shall refer to any street, or any portion of a street, within the boundaries of the "Vista Avenue Residential Parking District" which is designated and posted as a restricted parking zone with specific parking restrictions.

E. Visitor. A "visitor" is any person who is a household guest of a Resident, a worker performing services for a Resident, or an Employee.

F. Vista Avenue Residential Parking District. "The Vista Avenue Residential Parking District" is defined as follows:

1. 3300 block and 3400 block of Vista Avenue that is bounded on the east by Virginia Avenue and bounded on the west by South Theresa Avenue; and

2. 3500 block of Vista Avenue that is bounded on the east by South Theresa Avenue and bounded on the west by Carr Lane Avenue.

(Ord. No. 71997, 2, 5-30-2025.)

17.225.020 Designation of restricted parking zone.

The entire Vista Avenue Residential Parking District is hereby established as an independent restricted parking zone. At the time of filing, "Permit Parking Only" signs have already been erected under previous Ordinance 66784. The Streets Division, or successor department, shall maintain the signage posted within the Vista Avenue Residential Parking District and is hereby authorized to remove, replace, and install signage as necessary for compliance under this section.

(Ord. No. 71997, 3, 5-30-2025.)

17.225.030 Permit use.

A. No person shall park or cause to be parked any vehicle during any time that is not registered with the City's Parking Division for a parking permit.

B. No person shall park or cause to be parked, in excess of the posted parking time limit, any vehicle that is not registered with the City's Parking Division for a parking permit.

C. A resident may request a parking permit with the City's Parking Division for a visitor or employee who is performing services at resident's property. An employee may also request a parking permit from the City's Parking Division.

(Ord. No. 71997, 4, 5-30-2025.)

17.225.040 Disabled parking.

The provisions of this section shall not supersede or diminish the authority of the Traffic Administrator, upon the recommendation of the Commissioner for the Disabled, to issue, under the provisions of Ordinance Number 65142, a residential disabled parking permit for any parking space within the "Vista Avenue Residential Parking District." The holder of a residential disabled parking permit shall obtain a parking permit pursuant to this section free of charge.

(Ord. No. 71997, 5, 5-30-2025.)

17.225.050 Penalty for violation.

A. Any person who parks or causes to be parked any vehicle in violation of the provisions of this ordinance shall upon the conviction thereof be guilty of a Class Two parking violation for each such offense.

B. Any person who obtains a resident or visitor parking permit for any other person who is otherwise not eligible to obtain such a parking permit shall have their parking permit(s) suspended by the Parking Division for a period not to exceed one (1) year.

(Ord. No. 71997, 6, 5-30-2025.)

Title 18

AIRPORTS AND AVIATION

RSMo:

RSMo Ch. 305 (2016) Aircraft and airports

Cases:

Charter city of Berkeley's proposed annexation of Lambert-St. Louis Municipal Airport, which was owned by the city of St. Louis, was invalid. *McDonnell Aircraft Corporation v. City of Berkeley,* 367 S.W. 2d 498 (1963).

Chapters:

18.04	**Establishment of Airport**
18.08	**Airport Authority**
18.10	**Consent of City to Transfer of Rights**
18.12	**Airport Revenue and Improvements**
18.16	**Gifts to Airport**

Chapter 18.04

ESTABLISHMENT OF AIRPORT

Sections:

18.04.010	**St. Louis Lambert International Airport.**
18.04.020	**Public airport established—Location.**
18.04.030	**Additions to airport.**
18.04.040	**Dedication of airport property.**
18.04.050	**Sale of airport property.**

18.04.010 St. Louis Lambert International Airport.

The name of the public airport and landing field owned by the City and located in the County of St. Louis, State of Missouri, is changed to "St. Louis Lambert International Airport." (1994 C., § 18.04.010; Ord. No. 70358, §§ 1, 2, 10-25-2016; Ord. No. 56014, § 2, 1971.)

City Counselor Ops.: 10313

18.04.020 Public airport established—Location.

There is established a public airport and landing field, to be owned by the City, on land located at the confluence of the Mississippi River and Missouri River in the County of St. Louis, State of Missouri, the land being described as follows:

A tract of land situated in St. Louis County, Missouri, at the confluence of the Missouri and Mississippi Rivers, in Township 47 North, Ranges 7 East and 8 East, of the 5th Principal Meridian, more particularly described as follows:

Beginning at the point of intersection of the south line of the property now or formerly owned by Julius O. Trampe, et al., and the east line of Columbia Bottom Road, as heretofore established, thence in a northerly direction along the east line of said Columbia Bottom Road to its intersection with the north line of Strodtman Road, as heretofore established, thence in a westerly direction along the north line of said Strodtman Road to its intersection with the western line of the property now or formerly owned by the Riverview Stone and Material Company; thence north 18 degrees 27 minutes east 639 feet, more or less, along said west line to a point, thence north 48 degrees 31 minutes west 812 feet, more or less, to a point in the west line of a tract of about 30 acres, now or formerly owned by Fred H. and Mildred Mueller; thence north 11 degrees 49 minutes east along the west line of said 30-acre Mueller tract and its prolongation to the middle of the main channel of the Missouri River; thence in a general easterly direction along the middle of the main channel of the Missouri River to its intersection with the middle of the main channel of the Mississippi River; thence in a general southerly direction along the middle of the main channel of the Mississippi River to its intersection with the easterly prolongation of the south line of the tract now or formerly owned by Julius O. Trampe, et al.; thence westwardly along said prolongation and said south line of the Trampe tract to the east line of Columbia Bottom Road, the point of beginning; provided, however, that there shall be and are hereby excluded from the said airport and landing field establishment all easements, rights-of-way and roadway leases for underground oil pipe lines, and for overhead telephonic and telegraphic equipments, together with rights of ingress thereto and egress therefrom, all owned by Shell Pipe Line Corporation, a corporation, and capable of being owned by its successors and assigns, and covering that part of the above-described real property lying southward from the center line of Madison Ferry Road and its prolongation to the middle of the main channel of the Mississippi River, except the three following-described lands:

A tract fronting 2434.28 feet on the center line of Madison Ferry Road, 1909.58 feet thereof extending immediately westward from the dividing line between U.S. Surveys 329 and 1958, and 524.70 feet thereof

extending immediately eastward from the said dividing line; bounded east by a line extending from the said center line south 7 degrees 19 minutes west 893.31 feet, west by a line extending from the said center line south 7 degrees 19 minutes west 895.55 feet, and south by a straight line 2334.29 feet in length, and containing 50 acres. Land bounded west by the center line of Columbia Bottom Road and abutting thereon 1270 feet, 5 inches, north by the center line of Madison Ferry Road and abutting thereon 2019 feet, 8 inches, south by the southern line of U.S. Survey 329 and abutting thereon 1665 feet, 8¼ inches, and east by a straight line 1215 feet, 1 inch in length, and containing 56.103 acres. That part of Lot 3 of St. Vrain's Subdivision, bounded north by Lot 4 of the said subdivision and abutting thereon 1140.17 feet, east by Lot 6 of the said subdivision and abutting thereon 488.40 feet, west by the center line of Columbia Bottom Road and abutting thereon 490.48 feet and south by a line parallel with and distant 20 feet northward from the southern line of the said Lot 3 and abutting thereon 1089.50 feet, and containing 11.83 acres. All other private easements, all other private roads and all public roads within the real property first hereinabove described shall be and are hereby established as part of the said airport and landing field. (1948 C., Ch. 4, § 6; 1994 C., § 18.04.020.)

18.04.030 Additions to airport.

A. *1948 Code Chapter 4 Section 7.*

1. The Lambert-St. Louis Municipal Airport[1] is extended and enlarged, and the following lands situated in the County of St. Louis, Missouri, are opened and established for the purposes and as a part hereof:

Beginning at a point in the west line of Bridgeton Road seventy feet (70′) south of the center line of Wabash Main Track measured along said west line; thence continuing south along the west line of Bridgeton Road ninety feet (90′); thence west along the southerly property line of the Florissant Valley Cooperative Elevator Association one hundred and thirty-five feet (135′); thence northeasterly parallel with said center line of main track one hundred and sixty-five feet (165′), more or less, to the point of beginning.

2. There is established an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Field[1] and located at Bridgeton, in the County of St. Louis, State of Missouri, and the following-described lots, parcels and tracts of private real property situated in the county and state are established as part of such addition:

In Airport Park, a subdivision, recorded in Plat Book 28, Pages 72, 73 of the office of the Recorder of Deeds for the said county, the following numbered lots in the following numbered blocks, respectively:

In Block One (1), Lots one (1), two (2), three (3), four (4), five (5), six (6), thirteen (13), fourteen (14), twenty-one (21), twenty-two (22), twenty-four (24), twenty-five (25), twenty-six (26), twenty-seven (27), twenty-eight (28), twenty-nine (29), thirty-three (33), and thirty-four (34);

In Block Two (2), Lots one (1), two (2), three (3), four (4), six (6), eight (8), nine (9), ten (10), eleven (11), twelve (12), thirteen (13), fourteen (14), fifteen (15), sixteen (16), seventeen (17), eighteen (18), twenty (20), twenty-one (21), twenty-two (22), twenty-three (23), twenty-five (25), twenty-seven (27), twenty-eight (28), twenty-nine (29), thirty (30), thirty-one (31), thirty-two (32), thirty-three (33), thirty-four (34), thirty-five (35), and thirty-six (36);

In Block Three (3), Lots one (1), two (2), three (3), four (4), five (5), six (6), seven (7), eight (8), nine (9), twelve (12), thirteen (13), fourteen (14), fifteen (15), sixteen (16), seventeen (17), nineteen (19), twenty (20), twenty-one (21), twenty-three (23), twenty-four (24), twenty-six (26), twenty-eight (28), thirty (30), thirty-one (31), thirty-two (32), thirty-three (33), thirty-four (34), thirty-five (35), and thirty-six (36);

In Block Four (4), Lots one (1), two (2), three (3), five (5), six (6), eight (8), nine (9), ten (10), eleven (11), twelve (12), thirteen (13), sixteen (16), seventeen (17), eighteen (18), nineteen (19), twenty (20), twenty-two (22), twenty-four (24), twenty-six (26), twenty-seven (27), twenty-eight (28), thirty (30), thirty-one (31), thirty-three (33), and thirty-four (34);

In Block Five (5), Lots thirteen (13), fourteen (14), fifteen (15), eighteen (18), nineteen (19), twenty (20), twenty-one (21), twenty-two (22), twenty-three (23), twenty-four (24), twenty-five (25), twenty-six (26), twenty-seven (27), twenty-eight (28), thirty (30), thirty-one (31), thirty-four (34) and forty-six (46);

In Block Six (6), Lots one (1), eighteen (18) and thirty-six (36);

In Block Seven (7), Lots one (1), two (2), three (3), six (6), seven (7), thirteen (13), fifteen (15), sixteen (16), eighteen (18), nineteen (19), thirty (30), thirty-one (31), thirty-two (32), and thirty-three (33);

In Block Eight (8), Lots two (2), four (4), five (5), six (6), eight (8), nine (9), ten (10), twelve (12), thirteen (13), fourteen (14), fifteen (15), twenty-three (23), twenty-four (24), thirty-two (32), thirty-three (33), thirty-four (34), thirty-five (35), thirty-six (36), thirty-seven (37), thirty-eight (38) and forty (40);

In Block Nine (9), Lots four (4), five (5), twenty-seven (27), forty-one (41), forty-two (42) and forty-three (43);

In Block Thirteen (13), Lots one (1), two (2), three (3), four (4), six (6), seven (7), eight (8), nine (9), ten (10), eleven (11), twelve (12), thirteen (13), fifteen (15), seventeen (17), eighteen (18), nineteen (19), twenty (20), twenty-one (21), twenty-two (22) and twenty-four (24);

In Block Fourteen (14), Lots one (1), two (2), three (3), four (4), ten (10), twelve (12), thirteen (13), fourteen (14), sixteen (16), seventeen (17), eighteen (18), nineteen (19), twenty (20), twenty-one (21), twenty-two (22), twenty-three (23), twenty-four (24), thirty-three (33), thirty-four (34) and thirty-seven (37);

In Block Fifteen (15), Lots eighteen (18), twenty (20), twenty-three (23), twenty-four (24) and thirty-one (31);

In Block Sixteen (16), Lots nineteen (19), twenty (20), thirty (30), thirty-three (33) and thirty-six (36);

In Block Seventeen (17), Lots one (1), twenty-one (21), twenty-seven (27), twenty-nine (29), thirty-one (31), thirty-two (32) and thirty-five (35);

In Block Eighteen (18), Lots one (1), two (2), three (3), four (4), five (5), six (6) and forty-one (41);

And the following-described and following-named public roads, streets and alleys, and private roads, streets and alleys situated in the said county and state shall be and are hereby established as the remainder of such addition, to-wit: In Airport Park, a subdivision recorded in Plat Book 28, Pages 72, 73 of the office of the Recorder of Deeds for the said county, the following-described and following-named public streets and alleys, to-wit:

Curtiss Drive, a public street, 40 feet wide, from Natural Bridge Road to Lambert Drive; Robertson Drive, a public street, 50 feet wide, from Natural Bridge Road to Lambert Drive; Wright Drive, a public street, 50 feet wide, from Natural Bridge Road to Lambert Drive; Salisbury Drive, a public street, 50 feet wide, from Natural Bridge Road to Lambert Drive; Lambert Drive, a public street, 70 feet wide in part, and in part 50 feet wide, from Natural Bridge Road to Curtiss Drive; Scholle Drive, a public street, 40 feet wide, from Natural Bridge Road to Lambert Drive; Ryan Avenue, a public street, 50 feet wide, from Curtiss Drive to Wright Drive; Mahoney Avenue, a public street, 50 feet wide, from Curtiss Drive to Wright Drive; Orville Avenue, a public street, 50 feet wide, from Curtiss Drive to Wright Drive; Wilbur Avenue, a public street, 50 feet wide, from Curtiss Drive to Lambert Drive; Airport Road, a public street, 60 feet wide, from Curtiss Drive to Natural Bridge Road; the east and west public alley, 20 feet wide, in and through Block 18 of the said subdivision; the east and west public alley, 20 feet wide, in and through Block 9 of said subdivision; the east and west public alley, 20 feet wide, in and through Block 8 of said subdivision; the east and west public alley, 20 feet wide, in and through Block 1 of said subdivision.

3. There is established an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Field[1] and located at Bridgeton, in the County of St. Louis, State of Missouri, and the following-described parcels and tracts of private real property situated in the county and state are established as part of such addition:

Beginning at a point in the north line of Natural Bridge Road where the same is intersected by the east line of Curtiss Drive, 40 feet wide; thence northwardly along said east line of Curtiss Drive to its intersection with the northwest line of Airport Road, 60 feet wide; thence northeastwardly along the northwest line of said Airport Road to its intersection with the west line of Brown Road, 60 feet wide; thence northwardly along the west line of Brown Road to a point; said point being the intersection of the south line of Airport Road, 60 feet wide, projected westwardly, to the west line of said Brown Road, thence eastwardly along said prolongation and south line of Airport Road, 60 feet wide, to the west line of Brown Road, 60 feet wide; thence southwardly along a straight line coincident with the west line of Brown Road, 60 feet wide, and its prolongation southwardly to a point in the south line of Scudder Avenue, a private road, 40 feet wide; thence southwardly along a straight line to the northeast corner of property of Jerome Karst and Adele M. Karst, his wife, said Karst property being the eastern portion of Lot 3 of Lewellen Brown Estate, a Subdivision in United States Survey 656; thence westwardly along the north line of said Lot 3 and its prolongation westward to the northeast corner of property now or formerly of Carl A. Pfanstiel; thence southwardly along the east line of said Carl A. Pfanstiel property to the north line

of Natural Bridge Road; thence northwestwardly along the north line of Natural Bridge Road to its intersection with the east line of Curtiss Drive, the point of beginning; also:

The triangular-shaped parcel owned by Champ Realty Investment and Financial Company, a corporation, lying west of Airport Road, and more particularly described as follows: Beginning at the point of intersection of the northwest line of Airport Road and the east line of the land of the City of St. Louis; thence northeastwardly along the northwest line of Airport Road, bearing north 52 degrees 44 minutes 36.43 seconds east, a distance of 2452.24 feet to the point of curve of a curve to the right; thence northeastwardly along said curve, the radius of which is 985.27 feet, a distance of 241.29 feet to the point of intersection with the west line of Brown Road, 60 feet wide; thence northwardly along the west line of Brown Road, bearing north 0 degrees 26 minutes 21.43 seconds east, a distance of 34.12 feet to the intersection with the south line of the land of the City of St. Louis; thence westwardly along the south line of the land of the City of St. Louis, bearing north 89 degrees 17 minutes 48.57 seconds west, a distance of 2276.62 feet to an angle point; thence westwardly along the south line of the land of the City of St. Louis, bearing north 89 degrees 30 minutes 33.57 seconds west, a distance of 95.33 feet to the point of intersection with the east line of the land of the City of St. Louis; thence southwardly along the east line of the land of the City of St. Louis, bearing south 7 degrees 13 minutes 58.57 seconds east, a distance of 1682.03 feet to the point of beginning and containing 45.36 acres;

And the following-described and following-named public roads and private roads situated in such county and state shall be and are hereby established as the remainder of such addition, to-wit:

Airport Road extending from the eastern line of Curtiss Drive northeastwardly for a distance of about 5200 feet to the westerly prolongation of the southern line of that part of Airport Road extending east and west; a triangular part of Brown Road bounded on the west by the western line of Brown Road, on the southeast by the northwestern line of that part of Airport Road extending southwest and northeast, and on the north by the westerly prolongation of the southern line of that part of Airport Road extending east and west;

Airport Road extending from the northeastern line of Natural Bridge Road northwardly for a distance of about 500 feet to that part of Airport Road extending southwest and northeast;

Lakeman Road extending from the northeastern line of Natural Bridge Road northwardly for a distance of about 1700 feet;

Scudder Avenue extending from a point distant about 450 feet westwardly from its intersection with Brown Road, westwardly for a distance of about 1500 feet.

[1]For airport name change, see § 18.04.010.

B. *Ordinance 45581, 1951.*

There is established in the county and state, an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state, and the following-described tract of private real property situated in the county and state is established as such addition:

A tract of land in Lot 28 of the Hazelwood Farm, near the northeast corner of Lambert-St. Louis Municipal Airport, located in Township 47 North, Range 6 East, St. Louis County, State of Missouri, and more particularly described as follows, to-wit:

Starting at the intersection of the north line of the Wabash Railroad Company right-of-way 100 feet wide with the center line of Eva Avenue forty feet wide; thence north 7 degrees 14 minutes, 39 seconds east, 961.29 feet, along the center line of said Eva Avenue to a point; thence south 82 degrees, 32 minutes, 21 seconds east, 124.96 feet to an iron pipe marking the point of beginning; thence south 82 degrees, 32 minutes, 21 seconds east, 869.87 feet to a point in the west line of Lot 29 marked by an old stone; thence south 0 degrees, 21 minutes, 9 seconds west, 789.41 feet along the west line of Lot 29 to a point; thence north 86 degrees, 33 minutes, 46 seconds west, 200.70 feet to the point of curve of a curve to the right having a radius of 716.78 feet and marked by an iron pipe; thence along the arc of said curve 1173.54 feet to the point of tangency in a line bearing north 7 degrees, 13 minutes, 49 seconds east; thence north 7 degrees, 13 minutes, 49 seconds east, 85.12 feet to the iron pipe marking the point of beginning and containing 14.29 acres.

[1]For airport name change, see § 18.04.010.

C. *Ordinance 46429, 1953.*

There is established an addition to the area of the public airport and landing field owned by the City,

known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state, and the following-described parcels and tracts of private real property situated in the county and state are established as part of such addition:

A tract of land in U.S. Surveys 1196, 2524 and 1250, Township 46 North, Range 6 East, St. Louis County, Missouri; beginning at a point marking the intersection of the eastern line of Lindbergh Boulevard with the northern line of the property now or formerly of Edw. R. Goddard and Sadie Goddard, his wife, and running thence eastwardly along said northern line to the eastern line of said property; thence southwardly along said eastern line to the northern line of the property now or formerly of William L. Kisling and Erma Kisling, his wife; thence eastwardly along said northern line to the western line of Bridgeton Station Road, 70 feet wide; thence southwardly along said western line of Bridgeton Station Road, 70 feet and 90 feet wide, to the southern line of the property now or formerly of John Witte; thence westwardly along said southern line to the eastern line of the property now or formerly of Irving H. Bernard, said eastern line being the eastern line of Lot 1 of the subdivision, Airport View; thence southwardly along said eastern line to the southern line of said property; thence westwardly along said southern line to the eastern line of Lindbergh Boulevard, 150 feet wide; thence northwardly along said eastern line to the point of beginning.

A tract of land in the subdivisions of Town of Bridgeton, Cook's Addition to Bridgeton, Aviation View, and U.S. Survey 2524, Township 46 North, Range 6 East, St. Louis County, Missouri, beginning at a point marking the intersection of the northern line of Natural Bridge Road with the eastern line of St. Thomas St., and running thence northwardly along said eastern line to the line marking the northern terminus of St. Thomas St. and which line is also the southern line of the property now or formerly of Robert J. and Dorothy E. Cunningham; thence westwardly along said southern line to a point marking the center line of St. Thomas St., 40 feet wide; thence northwardly along the center line of St. Thomas St. produced northwardly, which said line is also the western line of Aviation View, to the northern line of Aviation View; thence eastwardly along said northern line to the eastern line of Aviation View; thence southwardly along said eastern line, which line produced southwardly is also the eastern line of Cook's Addition to Bridgeton, to the southern line of Lot 3 of said addition; thence westwardly along said southern line to the center line of the right of way for Drainage District No. 2a, 100 feet wide; thence southwardly along said center line to the northern line of Natural Bridge Road; thence westwardly along said northern line to the point of beginning.

A tract of land in Town of Bridgeton, U.S. Surveys 1993, 2524 and 2625, Township 46 North, Range 6 East, St. Louis County, Missouri, beginning at a point marking the intersection of the southern line of Natural Bridge Road with the eastern line of the property now or formerly of Christian L. Behle and Mary Behle, his wife, and running thence southwardly along said eastern line the southern continuation of which line is also the eastern line of the property now or formerly of Geo. F.R. Wittich and Dorothy H. Wittich, his wife, to the southern line of said property; thence westwardly along said southern line to the eastern line of Ashby Road; thence southwestwardly across Ashby Road and continuing along the southeastern line of the property now or formerly of Geo. F.R. Wittich and Dorothy H. Wittich, his wife, to an iron pipe, marking the southwestern corner of said property; thence southwestwardly along a line, through the property now or formerly of Olive M. Gutweiler, to an old iron pipe marking the southeast corner of the property now or formerly of Joseph J. Henschel and Patricia Henschel, his wife; thence southwestwardly along the southeastern line of said property to the northeastern line of Cypress Road; thence northwardly along said northeastern and eastern line to the southern line of the property now or formerly of Robert Lee and Mabel Tunstall; thence westwardly across St. Thomas St. or Cypress Road, and along the southern line of the property now or formerly of W.S. Weldon to the western line of said property; thence northwardly along said western line and the western lines of the properties now or formerly of First Colored Baptist Church of Bridgeton, Wm. H. and Helen Suedmeyer and Chas. W. Paschal and Elsie C. Paschal, his wife, to the southern line of Natural Bridge Road; thence eastwardly along said southern line to the point of beginning.

A tract of land in U.S. Surveys 168 and 2524, Township 46 North, Range 6 East, St. Louis County, Missouri, beginning at a point marking the intersection of the southern line of Natural Bridge Road with the western line of Edmundson Road, and running thence southwardly along said western line to a line perpendicularly distant 200 feet south of and parallel with the

southern line of the property now or formerly of August W. Behle and Bertha E. Behle, his wife; thence westwardly along said parallel line and the southern line of the property now or formerly of Herman, Jr. and Joyce Young, to the eastern line of Crestshire Lane; thence northwardly along said eastern line to the southern line of the property now or formerly of August W. Behle and Bertha E. Behle, his wife; thence westwardly along said southern line and its continuation, to the western line of King Private Road; thence northwardly along said western line to the prolongation westwardly of the southern line of the property of U.S. Department of Commerce; thence eastwardly along said southern line and its western prolongation to the eastern line of said property; thence northwardly along said eastern line to the southern line of Natural Bridge Road; thence eastwardly along said southern line to the point of beginning;

And the following-described and following-named public roads and private road situated in the said county and state shall be and are hereby established as the remainder of such addition, to-wit:

Missouri Bottom Road from the western line of Bridgeton Station Road westwardly to the eastern line of Lindbergh Boulevard; Ashby Road from the southern line of the property now or formerly of Geo. F.R. Wittich and Dorothy H. Wittich, his wife, northwardly to the southern line of Natural Bridge Road; Baptist Church Street from the western line of the property now or formerly of Olive M. Gutweiler, westwardly to a line connecting the western lines of the properties now or formerly of First Colored Baptist Church of Bridgeton and Wm. H. and Helen Suedmeyer; St. Thomas Street from a line connecting the southern lines of the properties now or formerly of W.S. Weldon and Robert Lee and Mabel Tunstall, northwardly to the southern line of Natural Bridge Road; King Private Road from the northern terminus of Crestshire Lane northwardly to the western prolongation of the southern line of the property of U.S. Department of Commerce.

[1]For airport name change, see § 18.04.010.

D. *Ordinance 50017, 1960.*

There is established in the county and state an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state. And the following-described parcels and tracts of private real property situated in the county and state are established as parts of such addition:

A tract of land partly in United States Survey 101 and partly in United States Survey 656, Township 46 North, Range 6 East, St. Louis County, Missouri, more particularly described as follows: Beginning at the point of intersection of the western line of Country Day Lane, 40 feet wide, with the line dividing said United States Surveys 101 and 656; thence north 23 degrees 03 minutes east 4.46 feet and north 15 degrees 46 minutes east 225.03 feet along the western line of Country Day Lane to a point distant 500 feet north of the eastern prolongation of the center line of Runway 12-30, measured at right angles to said center line prolongation; thence north 57 degrees 58½ minutes west 1665.11 feet and parallel with the eastern prolongation of said center line to the eastern line of Airport Road, 80 feet wide; thence south 12 degrees 39½ minutes west 755.97 feet along the eastern line of said Airport Road to a point of curve; thence continuing southwardly and southeastwardly 391.75 feet along the eastern and northeastern line of Airport Road—southeast, along a curve to the left having a radius of 510 feet to a point distant 500 feet south of the eastern prolongation of the center line of said Runway 12-30, measured at right angles to said center line prolongation; thence south 57 degrees 58½ minutes east 1343.13 feet and parallel with the eastern prolongation of said center line to the western line of said Country Day Lane; thence north 37 degrees 31 minutes east 21.79 feet, and north 23 degrees 03 minutes east 767.26 feet along the western line of Country Day Lane to the point of beginning, and containing 36.313 acres, according to survey made by Pitzman's Co. of Surveyors & Engineers dated December 28, 1959; also, a parcel of land in United States Survey 101, Township 46 North, Range 6 East, St. Louis County, Missouri, more particularly described as follows: Beginning at the point of intersection of the eastern line of Country Day Lane, 40 feet wide, with the southern line of United States Survey 101; thence north 15 degrees 46 minutes east 211.31 feet along the eastern line of Country Day Lane to a point distant 500 feet north of the eastern prolongation of the center line of Runway 12-30, measured at right angles to said center line prolongation; thence south 57 degrees 58½ minutes east 291.07 feet and parallel with the eastern prolongation of said center line; thence south 32 degrees 01½ minutes west 93.37 feet to the southern line of United

States Survey 101; thence north 83 degrees 15 minutes west 256.46 feet along the southern line of United States Survey 101 to the point of beginning and containing 0.926 acres, according to a survey made by Pitzman's Co. of Surveyors & Engineers dated December 28, 1959; also, a parcel of land in United States Survey 656, Township 46 North, Range 6 East, St. Louis County, Missouri, more particularly described as follows: Beginning at the point of intersection of the eastern line of Country Day Lane, 40 feet wide, with the northern line of United States Survey 656; thence south 15 degrees 46 minutes west 4.60 feet and south 23 degrees 03 minutes west 69.35 feet along the eastern line of Country Day Lane to the southwestern corner of property secondly described in deed to James H. Anderson and wife, recorded in Book 1559, Page 373, St. Louis County Recorder's Office; thence south 83 degrees 15 minutes east 243.07 feet along the southern line of said Anderson property; thence north 32 degrees 01½ feet to the northern line of said United States Survey 656; thence north 83 degrees 15 minutes west 256.46 feet along the northern line of United States Survey 656 to the point of beginning and containing 0.407 acres, according to survey made by Pitzman's Co. of Surveyors & Engineers dated December 28, 1959; also, a parcel of land in United States Survey 656, Township 46 North, Range 6 East, St. Louis County, Missouri, more particularly described as follows: Beginning at a point in the eastern line of Country Day Lane, 40 feet wide, at the southwestern corner of property secondly described in deed to James H. Anderson and wife, recorded in Book 1559, Page 373, St. Louis County Recorder's Office; thence south 23 degrees 03 minutes west 710.00 feet and south 37 degrees 31 minutes west 23.02 feet along the eastern line of said Country Day Lane to a point distant 500 feet south of the eastern prolongation of the center line of Runway 12-30, measured at right angles to said center line prolongation; thence south 57 degrees 58½ minutes east 111.24 feet; thence north 32 degrees 01½ minutes east 828.00 feet to the southern line of said Anderson property; thence north 83 degrees 15 minutes west 243.07 feet along the southern line of said Anderson property to the point of beginning and containing 2.967 acres, according to a survey made by Pitzman's Co. of Surveyors & Engineers dated December 28, 1959.

[1]For airport name change, see § 18.04.010.

E. *Ordinance 50743, 1961.*

There is established an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state. And the following-described parcels and tracts of private real property situated in the county and state are established as such addition:

Part of Lots 8 and 9 of Cook's Addition to Bridgeton, described as follows: Beginning at the most northern corner of said Lot 8; thence along the northeast line of said Lot 8, south 39 degrees 12 minutes east 394.16 feet to the center line of St. Thomas Street; thence along said center line south 46 degrees 36 minutes west 498.35 feet to a point; thence north 43 degrees 6 minutes west 224 feet to a point; thence north 46 degrees 36 minutes east 210 feet to a point; thence north 52 degrees 10½ minutes west 171.14 feet to a point; thence north 46 degrees 36 minutes east 342.49 feet to the point of beginning.

Subject to right-of-way of St. Thomas Street, 48 feet wide, over that part of the above property embraced therein.

The southwest 50 feet of the above-described property is subject to easement for roadway purposes for the joint use and benefit of the above-described property and the property adjoining same now or formerly owned by John A. Hughes.

A parcel of land in part of Lot 8 and part of Lot 9 of Cook's Addition to Bridgeton, according to the plat thereof recorded in Plat Book 14 Page 74 of the St. Louis County Records, and described as follows: Beginning at a point in the northwest line of Lot 9 of Cook's Addition to Bridgeton, distant south 46 degrees 36 minutes west 525.49 feet from the northwest corner of Lot 8, said beginning point being also the northwest corner of a 1.00 acre tract conveyed to Charles E. Beuer and wife, by deed recorded in Book 568 Page 286 of the St. Louis County Records; thence south 43 degrees 6 minutes east along said Beuer's northeast line 169.14 feet to a point; thence north 46 degrees 36 minutes east 210.00 feet to a point in a creek; thence northwest 172 feet more or less, to a point in the northwest line of Lot 8 of said Cook's Addition, distant north 46 degrees 36 minutes east 183.00 feet from the point of beginning; thence south 46 degrees 36 minutes west, 183.00 feet to the point of beginning.

[1]For airport name change, see § 18.04.010.

F. *Ordinance 52721, 1964, amends Ordinance 49939, 1960.*

There is established in the county and state an addition to the area of the public airport and landing

field owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state. And the following-described parcels and tracts of private real property situated in the county and state are established as parts of such addition:

Part of Lots 1, 2, 3, 4 and 5 of the First Subdivision of Bridgeton Commons in U.S. Survey 1196 Township 46 North Ranges 5 and 6 East and described as follows: Beginning at the point of intersection of the southwestern line of Missouri Bottom Road with the southern line of Fee Fee Road, thence south 41 degrees 27½ minutes east and along the southwestern line of said Missouri Bottom Road a distance of 152.12 feet to a point, thence continuing along the southwestern line of said Missouri Bottom Road south 38 degrees 26¾ minutes east 491.14 feet to a point, thence south 51 degrees 37¾ minutes west and along the southeastern line of property described in deed to Fred C. Thies and wife, recorded in Book 948, Page 141, a distance of 1747.88 feet to a point in the line between Lots 5 and 6 of said First Subdivision of Bridgeton Commons, thence north 38 degrees 17¼ minutes west and along the said line between Lots 5 and 6 of said First Subdivision of Bridgeton Commons, a distance of 741.80 feet to a point, thence north 51 degrees 41¾ minutes east and along the southeastern line of property described in deed to Frank Klass and wife, recorded in Book 328, Page 77, a distance of 1649.69 feet to the southern line of Fee Fee Road, as widened, thence, south 80 degrees 43¼ minutes east and along the southern line of said Fee Fee Road, a distance of 131.03 feet to the southwestern line of Missouri Bottom Road, the point of beginning and containing 29.578 acres.

Part of Lots 1 and 2 of the First Subdivision of Bridgeton Commons, in U.S. Survey 1196 Township 46 North Range 6 East, and described as: Beginning at an old axle set at the intersection of the northwest line of Lindbergh Boulevard, 150 feet wide, with the southwest line of Missouri Bottom Road, 40 feet wide; thence running north 37 degrees 30⅔ minutes west along the southwest line of Missouri Bottom Road, 855.38 feet to an axle; thence south 52 degrees 33⅔ minutes west 586.72 feet to an iron pipe; thence south 37 degrees 33 minutes east 416.18 feet to an old iron pipe set in the northwest corner of property conveyed to Cardinal Service Stations, Inc., by deed recorded in Book 3322 Page 145 of the St. Louis County Records; thence north 52 degrees 31 minutes east along the northwest line of property conveyed to Cardinal Service Stations, Inc., as aforesaid, 188.63 feet to an old iron pipe; thence south 37 degrees 33 minutes east along the northeast line of said Cardinal Service Stations property, 300 feet to an old iron pipe in the northwest line of Lindbergh Boulevard and thence north 71 degrees 52 minutes east along said boulevard, 421.48 feet to the point of beginning, containing 8.977 acres, according to survey executed by Joyce Company, on August 27 and 28, 1953.

Part of Lot 2 of the First Subdivision of Bridgeton Commons, in U.S. Survey 1196 Township 46 North, Range 6 East, described as: Beginning at an iron pipe in the northwest line of Lindbergh Boulevard, 150 feet wide, distant south 71 degrees 52 minutes west 421.48 feet from its intersection with the southwest line of Missouri Bottom Road, 40 feet wide; thence running south 71 degrees 52 minutes west along the northwest line of Lindbergh Boulevard, 200 feet to an iron pipe; thence leaving said Highway and running north 37 degrees 33 minutes west, 233.73 feet to an iron pipe; thence north 52 degrees 31 minutes east, 188.63 feet to an iron pipe and thence south 37 degrees 33 minutes east, 300 feet to the point of beginning, according to survey by Clayton Surveying and Engineering Company on May 27 and 28, 1953.

Part of Lots 2 and 3 of the First Subdivision of Bridgeton Commons in U.S. Survey 1196 Township 46 North, Range 6 East and described as: Beginning at a point in the northwest line of Lindbergh Boulevard, 150 feet wide, distant 621.48 feet (as measured along said Road line) south of its intersection with the southwest line of Missouri Bottom Road, 40 feet wide; thence north 37 degrees 33 minutes west 656.81 feet to property conveyed to Fred C. Thies and wife by deed recorded in Book 948 Page 141 of the St. Louis County Records; thence south 52 degrees 31 minutes west along said property of Fred C. Thies and wife, a distance of 188.62 feet to a point; thence south 37 degrees 33 minutes east, a distance of 590.72 feet to Lindbergh Boulevard; thence north along Lindbergh Boulevard, a distance of 200 feet to the point of beginning and containing approximately 2.70 acres, according to survey by Clayton Surveying and Engineering Company on August 20, 22 and 26, 1952.

Part of Lot 3 of the First Subdivision of Bridgeton Commons in U.S. Survey 1196, Township 46 North, Range 6 East and more particularly described as: Beginning at an iron pipe in the northern line of Missouri State Highway No. 77 (Lindbergh Boulevard), 150 feet wide, said point being 821.48 feet measured along said

road line, southwest of the intersection of the center line of Missouri Bottom Road with the northern line of Highway No. 77, thence leaving said road line and running north 37 degrees 33 minutes west, 590.72 feet to an iron pipe; thence south 52 degrees 31 minutes west 130.09 feet to an iron pipe; thence south 37 degrees 33 minutes east 554.64 feet to an iron pipe in the northern line of said Highway No. 77 and thence northeastwardly along said road line along the arc of a curve to the right having a radius of 1985.10 feet a distance of 135 feet to the point of beginning.

Part of Lot 3 of the First Subdivision of Bridgeton Commons, in U.S. Survey 1196 Township 46 North, Range 6 East, and described as: Beginning at a point in the most northern line of Missouri State Highway No. 77 or Lindbergh Boulevard, said point being 977.71 feet southwest of the intersection of the center line of Missouri Bottom Road with the most northern line of said Highway No. 77; thence north 37 degrees 33 minutes west 554.64 feet more or less to a point in the southeast line of property conveyed to Fred C. Thies and wife by deed recorded in Book 948 Page 141 of said records; thence along Thies's southeast line south 52 degrees 31 minutes west, 130.09 feet to a point; thence south 37 degrees 33 minutes east 518.57 feet to a point in the north line of State Highway No. 77; thence along said Highway line, being a curve to the right, having a radius of 1985.10 feet, a distance of 135 feet to the point of beginning.

[1]For airport name change, see § 18.04.010.

G. *Ordinance 52781, 1964.*

There is established the following-described land situated in St. Louis County, Missouri as an addition to the public airport owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state:

Certain parcel of land in U.S. Survey 168, Township 46 North Range 6 East, more particularly described as follows: Beginning at the northeast corner of Lot 3 of the Second Resubdivision of Crestshire, according to the plat thereof recorded in Plat Book 47, Page 57 of the St. Louis County Records; thence south 74°13′13″ east, two hundred six and fifteen hundredths (206.15) feet to a point; thence south 82°45′20″ east; two hundred ninety-nine and eighty-six hundredths (299.86) feet to a point; thence south 4°39′20″ east, two hundred sixty-one and forty-one hundredths (261.41) feet to a point; thence north 72°55′40″ west, five hundred sixty-eight and thirty hundredths (568.30) feet to a point on the eastern line of said Second Resubdivision of Crestshire; thence north 7°59′ east, one hundred eighty-nine and twenty hundredths (189.20) feet along said eastern line to the point of beginning.

[1]For airport name change, see § 18.04.010.

H. *Ordinance 54245, Ordinance 52890, 1964, amends Ordinance 51684, 1963.*

There is established in the county and state an addition to the area of the public airport and landing field owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located at Bridgeton, in the county and state. And the following-described parcels and tracts of private real property situated in the county and state are established as parts of such addition:

Certain parcels of land lying in the Lucas Subdivision of the California Farm and the Brown Partition of U.S. Surveys 101 and 656 in Township 46 North Range 6 East, St. Louis County, Missouri, more particularly described as follows:

First, beginning at the point of intersection of the western line of Country Day Lane, forty (40) feet wide, with the dividing line of U.S. Surveys 101 and 656, thence north 23°03′ east, four and forty-six hundredths (4.46) feet to a point; thence north 15°46′ east along said western line of Country Day Lane a distance of seven hundred sixty-one and thirty-three hundredths (761.33) feet to a point; thence continuing along said western line of Country Day Lane north 7°05′ east a distance of two hundred thirty and twelve hundredths (230.12) feet to a point; thence north 79°15′ west along the south line of Country Day Lane a distance of two hundred seventy-six and thirty-eight hundredths (276.38) feet to a point; thence north 0°55′ west along a line, said line being again the western line of Country Day Lane, a distance of nine hundred ninety-eight and eighty-six hundredths (998.86) feet to a point; thence north 11°50′ east along the western line of Country Day Lane a distance of four hundred thirty-one and eighteen hundredths (431.18) feet to a point; said point being the intersection of the western line of Country Day Lane, forty (40) feet wide and the southern line of Harmon Lane forty (40) feet wide, thence north 83°15′ west along the southern line of Harmon Lane a distance of six hundred sixty-three and forty-five hundredths (663.45) feet to a point; thence north 47°18½′ west along said southern line of Harmon Lane a distance of five hundred forty-three and twenty-two hundredths (543.22) feet to a point of curve; thence along said curve to the left having a radius of twenty-five (25) feet

a distance of fifty-five and seventy-one hundredths (55.71) feet to the point of reverse curve which is the eastern line of Brown Road, eighty (80) feet wide; thence along a curve to the right having a radius of twelve thousand and forty (12,040) feet a distance of sixteen hundred and four and ninety-three hundredths (1604.93) feet to a point of tangency; thence south 12°39½′ west along the eastern line of Brown Road a distance of nine hundred thirty-nine and eighty-two hundredths (939.82) feet to a point of curve; thence along said curve to the left having a radius of five hundred ten (510) feet a distance of four hundred seventy-four and one tenth (474.10) feet to a point of tangency; thence south 40°36¼′ east, along the eastern line of Brown Road, a distance of nine hundred five and five-tenths (905.5) feet to a point, said point being the intersection of the eastern line of Brown Road and the northern line of Interstate Route 70; thence south 83°01¾′ east along said northern line of Interstate Route 70; a distance of four hundred thirty-one and eighty-four hundredths (481.84) feet to a point, said point being the intersection of the northern line of Interstate Route 70 with the western line of Country Day Lane; thence north 37°31′ east along said western line of Country Day Lane a distance of one hundred forty and sixty-five hundredths (140.65) feet to a point; thence north 23°03′ east along said line of Country Day Lane a distance of seven hundred sixty-seven and twenty-six hundredths (767.26) feet to a point of beginning.

Second, beginning at the intersection of the southern line of Doodles Dale Subdivision and the northward prolongation of the western line of Country Day Lane, forty (40) feet wide, thence along a curve to the left having a radius of thirty (30) feet a distance of twenty-eight and seventy-six hundredths (28.76) feet to a point; thence along a line in a northeastwardly direction a distance of seventy-three and forty-nine hundredths (73.49) feet to a point of curve in the western line of Clifton Lane, fifty (50) feet wide; thence along said western line of Clifton Lane being also a curve to the left having a radius of one hundred forty (140) feet, a distance of ninety-five and three-tenths (95.30) feet to a point; thence north 6°49′ west along the western line of Clifton Lane a distance of one hundred nine and fifty-seven hundredths (109.57) feet to a point of curve; thence along said curve to the left having a radius of twenty (20.0) feet a distance of thirty-one and four-tenths (31.4) feet, more or less, to a point of curve; thence along said curve to the right having a radius of fifty (50.0) feet a distance of one hundred fifty-seven and eight hundredths (157.08) feet to a point of curve; thence along said curve to the left a distance of thirty-one and four-tenths (31.4) feet, more or less, to a point in the eastern line of Clifton Lane, fifty (50) feet wide; thence north 6°49′ east along said western line of Clifton Lane a distance of sixty and eight hundredths (60.08) feet to a point; thence south 83°18′ east along the eastern prolongation of said north line of Lot 115, a distance of eighteen and eighty-one hundredths (18.81) feet to a point; thence north 6°38′ east a distance of four hundred sixty-three and fifty-one hundredths (463.51) feet to a point in the southern line of Scudder Avenue; thence north 83°18′ west along the southern line of Scudder Avenue a distance of four hundred seventy-three and thirty-eight hundredths (473.38) feet to a point, said point being the intersection of the southern line of Scudder Avenue and the eastern line of Country Day Lane, thence south 0°53′ east along the eastern line of Country Day Lane a distance of nine hundred twenty-five and twenty-seven hundredths (925.27) feet to a point, thence south 79°15′ east along a line said line being the northern line of Country Day Lane, a distance of one hundred ninety-five and thirty-one hundredths (195.31) feet to a point, thence north 0°55° west along a line a distance of six and six hundredths (6.06) feet to a point, thence south 79°15′ east along a line a distance of thirty-six and five-tenths (36.5) feet to the point of beginning.

Third, beginning at a point in center line of Brown Road at its intersection with the south line of U.S. Survey 101; thence along center line of said road, north 10°22′ east seven hundred sixty-four (764) feet and north 3°13′ east two hundred thirty-five and two-tenths (235.2) feet; thence south 88°27′ east two thousand and seven (2007) feet to a stone; thence south 1°0′ west nine hundred eighty-seven and nine-tenths (987.9) feet to a stone, in south line of U.S. Survey 101; thence along said survey line, north 88°30′ west two thousand one hundred twenty-nine and three-tenths (2129.3) feet to place of beginning, containing 47.51 acres including ½ of Brown Road; also a parcel beginning at an iron rail set on the southwest line of a strip one hundred (100) feet wide, conveyed to Charles S. Ruffner by deed recorded in Book 297 Page 625 of the St. Louis County Records where the same is intersected by the north line of the south ½ of Survey 101, said point being distant north 82°44′ west one thousand four hundred and ninety-seven and twenty-one hundredths (1497.21) feet from

the east line of U.S. Survey 101; thence along said north line of the south ½ of said Survey 101, north 82°44′ west five and forty-hundredths (5.40) feet to an old stone in the northeast corner of property conveyed to St. Louis Country Day School by deed recorded in Book 428 Page 519 of the St. Louis County Records; thence along the east line of said property so conveyed, south 7°1.7 west nine hundred eighty-seven and thirty-three hundredths (987.33) feet to the south line of said Survey 101, thence along the south line of said Survey south 82°50′ east six hundred sixty-six and fifty hundredths (666.50) feet to the southwest line of said strip 100 feet wide conveyed to Charles S. Ruffner, as aforesaid; thence along the southwest line of said strip north 26°35′ west one thousand one hundred eighty-nine and fifty hundredths (1189.50) feet to the place of beginning, containing 7.609 acres, according to survey executed by Edgar Rapp, Surveyor, on February 9, 1926.

Fourth, beginning at the point of intersection of the eastern line of Country Day Lane 40 feet wide, with the northern line of United States Survey 656, thence south 15 degrees 46 minutes west 4.60 feet and south 23 degrees 03 minutes west 69.35 feet along the eastern line of Country Day Lane to the southwestern corner of property secondly described in deed to James H. Anderson and wife, recorded in Book 1559, Page 373, St. Louis County Recorder's Office; thence south 83 degrees 15 minutes east 243.07 feet along the southern line of said Anderson property; thence north 32 degrees 01½ minutes east 78.63 feet to the northern line of said United States Survey 656; thence north 83 degrees 15 minutes west 256.46 feet along the northern line of United States Survey 656 to the point of beginning and containing 0.47 acres, according to survey made by Pitzman's Company of Surveyors & Engineers dated December 28, 1959.

Fifth, beginning at a point in the eastern line of Country Day Lane, 40 feet wide, at the southwestern corner of property secondly described in deed to James H. Anderson and wife, recorded in Book 1559, Page 373, St. Louis County Recorder's Office; thence south 23 degrees 03 minutes west 710.00 feet and south 37 degrees 31 minutes west 23.02 feet along the eastern line of said Country Day Lane to a point distant 500 feet south of the eastern prolongation of the center line of Runway 12-30 measured at right angles to said center line prolongation; thence south 57 degrees 58½ minutes east 111.24 feet; thence north 32 degrees 01½ minutes east 828.00 feet to the southern line of said Anderson property; thence north 83 degrees 15 minutes west 243.07 feet along the southern line of said Anderson property to the point of beginning and containing 2.967 acres, according to a survey made by Pitzman's Company of Surveyors & Engineers dated December 28, 1959.

[1]For airport name change, see § 18.04.010.

I. *Ordinance 54244, 1966.*

There is established a public addition to the area of the public airport and landing field owned and operated as such by the City, officially named Lambert-St. Louis Municipal Airport[1] and located at the City of Bridgeton, in the county and state, and, for such addition, the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed to condemn under power in the City Charter and in accordance with the statutes of the state, private real property in the county and state; and such private real property is described as follows:

Parcel 1: A tract of land in U.S. Survey 656, Township 46 North, Range 6 East, and described as: Beginning at a stone set at the southeast corner of Lot 7 of Lewellyn Brown Estate Partition, thence, along the east line of said Lot 7, north 7 degrees 49 minutes east 844.60 feet to a stone in the center line of the creek; thence along the center line of said creek the following courses and distances, north 63 degrees 39 minutes east 133.35 feet, north 25 degrees 52 minutes east 137.78 feet, north 77 degrees 12 minutes east 213.80 feet, north 75 degrees 08 minutes east 115.00 feet, south 64 degrees 55 minutes east 163.56 feet, south 78 degrees 31 minutes east 148.00 feet, and south 82 degrees 36 minutes east 164.09 feet to a point in the western line of the Missouri Electric Company right-of-way, 100 feet wide; thence along said right-of-way line north 26 degrees 35 minutes west 461.61 feet to a point in the line dividing U.S. Surveys 101 and 656; thence along said dividing line north 82 degrees 55 minutes west 2173.43 feet and north 82 degrees 54½ minutes west 603.21 feet to a point in the east line of Country Day Lane, formerly Brown Road, 40 feet wide; thence along the east line of said lane south 16 degrees 06½ minutes west 4.60 feet and south 23 degrees 23½ minutes west 69.35 feet to a point; thence south 82 degrees 54½ minutes east 622.63 feet to a point in the line dividing Lots 5 and 7 of Lewellyn Brown Estate Partition; thence along said dividing line south 7 degrees 42 minutes west 1192.29 feet to a point in the north line of Interstate Route 70; thence along said north line south 71 degrees 45¼ minutes east 1147.91 feet to a point; thence south 82

degrees 55 minutes east 375.38 feet to the point of beginning, containing 56.981 acres according to a survey executed by Pitzman's Company of Surveyors & Engineers on March 9, 1966.

Parcel 2: Also, a triangular-shaped parcel of land in U.S. Survey 656, Township 46 North, Range 6 East, and described as: Beginning in the north line of said U.S. Survey 656 at its intersection with the east line of the Missouri Electric Company right-of-way, 100 feet wide; thence along the east line of said right-of-way south 26 degrees 35 minutes east 481.03 feet to a point; thence south 74 degrees 10 minutes east 7.72 feet to a point; thence south 65 degrees 19 minutes east 252.83 feet to a point in the west line of Middleway Boulevard, formerly Public Service Company right-of-way, 30 feet wide; thence along last mentioned line north 46 degrees 29 minutes west 227.55 feet to a point; thence continuing northwardly along said line being a curve to the right having a radius of 1447.69 feet, a distance of 479.41 feet to a point in the north line of said U.S. Survey 656; thence along said north line north 82 degrees 55 minutes west 0.23 feet to the point of beginning, containing 0.552 acres according to a survey executed by Pitzman's Company of Surveyors & Engineers on March 9, 1966.

[1]For airport name change, see § 18.04.010.

J. *Ordinance 54455, 1967.*

There is established a public addition to the area of the public airport and landing field owned and operated as such by the City, officially named Lambert-St. Louis Municipal Airport[1] and located in the county and state, and for acquisition of such addition the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed, under power in the City Charter and in accordance with the statutes of the state to condemn certain private real property situated in the county and state and described as follows:

A tract of land in Lot 3 of the Lewellyn Brown Estate Partition, according to plat "A" filed with the Commissioners' Report in Partition of the Estate of Lewellyn Brown deceased, in United States Survey 656, Township 46 North, Range 6 East, and being more particularly described as follows: Beginning at a point in the north line of said Lot 3 distant 468.66 feet, more or less, from the northeast corner of said Lot 3 (as measured along the north line of Lot 3), said beginning point being also the northwest corner of property conveyed to John D. Kalemeris and wife by deed recorded in Book 2264 Page 174 of the St. Louis County Records; thence westwardly along the north line of said Lot 3 a distance of 258 feet, more or less, to the northeast corner of property conveyed to William A. Warmann and wife by deed recorded in Book 2744 Page 94 of the St. Louis County Records; thence southwardly along the eastern line of said Warmann property to a point on the northern line of Interstate Route 70 (Mark Twain Expressway); thence eastwardly along the north line of said Interstate Route 70 to its intersection with the western line of said property conveyed to John D. Kalemeris and wife; thence northwardly along the eastern line of said Kalemeris property to the northwest corner thereof and the point of beginning;

Also, a tract of land in Lot 3 of the Lewellyn Brown Estate Partition, according to Plat "A" filed with the Commissioner's Report in Partition of the Estate of Lewellyn Brown, deceased, in United States Survey 656, Township 46 North, Range 6 East, and being more particularly described as follows: Beginning at the northeast corner of said Lot 3 of the Lewellyn Brown Estate Partition; thence north 83 degrees west along the north line of said Lot 3 a distance of 346.96 feet, more or less, to the northeast corner of property conveyed to John D. Kalemeris and wife by deed recorded in Book 2264 Page 174 of the St. Louis County Records; thence south 7 degrees 30 minutes west along the east line of said Kalemeris property to the northwest corner of property conveyed to the State of Missouri, acting by and through the State Highway Commission of Missouri for Interstate Route 70 (Mark Twain Expressway) by instrument recorded in Book 3727 Page 94 of the St. Louis County Records; thence eastwardly along the north line of said State of Missouri property to the east line of said Lot 3 being also a point in the center line of Airport Road (80 feet wide); thence northwardly along the east line of said Lot 3 (being also the center line of Airport Road 80 feet wide); to the northeast corner thereof and the point of beginning; Excepting Therefrom that portion thereof conveyed to the City of St. Louis by deed recorded in Book 2508 Page 157 being Airport Road as shown on dedication plat thereof recorded in Plat Book 45 Page 44 of the St. Louis County Records;

Also, A tract of land in Lot 3 of the Lewellyn Brown Estate Partition, according to Plat "A" filed with the Commissioner's Report in Partition of the Estate of Lewellyn Brown, deceased, in United States Survey 656, Township 46 North, Range 6 East, and

being more particularly described as follows: Beginning at a point in the north line of said Lot 3 of the Lewellyn Brown Estate Partition distant 1,387.18 feet east of northwest corner of said Lot 3 (as measured along the north line of said Lot 3), said beginning point being the northeast corner of property conveyed to Mamie Fliehmann wife of George J. Fliehmann by deed recorded in Book 492 Page 298 of the St. Louis County Records; thence eastwardly along the north line of said Lot 3 a distance of 399.63 feet to the northwest corner of property conveyed to John Pappas and wife by deed recorded in Book 2104 Page 248 of the St. Louis County Records; thence southwardly along the west line of said Pappas property to the north line of property condemned by the State of Missouri ex rel, State Highway Commission of Missouri for Interstate Route 70 (Mark Twain Expressway), according to decree rendered under Cause No. 208082 of the Circuit Court of St. Louis County, Missouri; thence westwardly along the north line of said property condemned by the State of Missouri, ex rel, to its intersection with the east line of said property conveyed to Mamie Fliehmann; thence northwardly along the east line of said Fliehmann property to the northeast corner thereof and the point of beginning;

Also, A tract of land in Lot 3 of the Lewellyn Brown Estate Partition, according to Plat "A" filed with Commissioner's Report in Partition of the Estate of Lewellyn Brown deceased, in United States Survey 656, Township 46 North, Range 6 East, and being more particularly described as follows: Beginning at a point on the north line of said Lot 3 of the Lewellyn Brown Estate Partition, distant 346.96 feet; more or less, from the northeast corner of said Lot 3 (as measured along the north line of said Lot 3), said beginning point being also the northwest corner of property conveyed to Champ Realty, Investment and Financial Company by deed recorded in Book 5377 Page 81 of the St. Louis County Records; thence southwardly along the west line of said property conveyed to Champ Realty, Investment and Financial Company to its intersection with the north line of property conveyed by the State of Missouri, ex rel, State Highway Commission of Missouri for Interstate Route 70 (Mark Twain Expressway) according to decree rendered under Cause No. 208082 of the Circuit Court of St. Louis County, Missouri; thence westwardly along the north line of said property condemned by the State of Missouri, ex rel, to its intersection with the west line of property conveyed to John D. Kalemeris and wife by deed recorded in Book 2264 Page 174 of the St. Louis County Records; thence northwardly along the west line of said Kalemeris property to the northwest corner thereof, being also a point on the north line of said Lot 3; thence eastwardly along the north line of said Lot 3 a distance of 121.7 feet, more or less, to the point of beginning;

Also, A tract of land in Lot 4 of the Lewellyn Brown Estate Partition, according to the Plat filed with the Commissioner's Report in Partition of the Estate of Lewellyn Brown, deceased, in United States Survey 656, Township 46 North, Range 6 East, and being bounded as follows: North by the southern line of the rounded intersection of Airport Road, 80 feet wide, and Airport Road southeast, 80 feet wide, as shown on the dedication plat thereof recorded in Plat Book 45 Page 44 of the St. Louis County Records; northeast by the southwest line of said Airport Road southeast, 80 feet wide, as shown on said dedication plat thereof recorded in Plat Book 45 Page 44 of the St. Louis County Records; eastwardly by the western lines of property conveyed to the State of Missouri for the Mark Twain Expressway (Interstate Route 70), by instrument recorded in Book 3766 Page 428 of the St. Louis County Records; west by the east line of Airport Road, 80 feet wide, as shown on said dedication plat thereof recorded in Plat Book 45 Page 44 of the St. Louis County Records; and bounded southwardly by the northern lines of said property conveyed to the State of Missouri for the Mark Twain Expressway (Interstate Route 70), by deed recorded in Book 3766 Page 428 of the St. Louis County Records.

[1]For airport name change, see § 18.04.010.

K. *Ordinance 55052, 1968.*

There is established a public addition to the area of the public airport and landing field owned and operated as such by the City, officially named Lambert-St. Louis Municipal Airport[1] and located in the county and state, and for acquisition of such addition, the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed, under power in the City Charter, and in accordance with the statutes of the state to condemn certain private real property situated in the county and state and described as follows:

A tract of land in United States Surveys 1247 and 1250, Township 46 North, Range 6 East and being part of Weldon Estate Subdivision of Lot 37 of Waverly Subdivision, according to plat thereof recorded in Plat

Book 7 Page 12 of the St. Louis County Records, a portion of which has been subdivided and known as Western Zephyr Tract Subdivision recorded in Plat Book 96 Page 4 of said records, and beginning at a point in the center line of Missouri Bottoms Road, 40 feet wide, at its intersection with the northern line of Lindbergh Boulevard, 150 feet, running thence northwestwardly along the center line of Missouri Bottoms Road a distance of 1530.95 feet, more or less, to its intersection with the southern line of the right-of-way of the Wabash Railroad Company; thence southeastwardly along said right-of-way line a distance of 1926.04 feet, more or less, to a point in the northwestern line of Lot 4 of the aforementioned Weldon Estate Subdivision, distant therein 90.28 feet southwest of said right-of-way line; thence southwestwardly along the northwestern line of said Lot 4 a distance of 99.72 feet, more or less, to the northern terminus of a road, 50 feet wide, reserved for road purposes as per deeds recorded in Book 3388 at Pages 7 and 6 of the St. Louis County Recorder's Office; thence southeastwardly along the northern terminus of said 50-foot road and its southeastwardly prolongation a distance of 732.31 feet, more or less, to the northern line of said Lindbergh Boulevard, and thence southwestwardly along the variations of said Lindbergh Boulevard 1555.67 feet, more or less, to the point of beginning; also,

A triangular tract of land being part of Lots 1, 2, and 3 of the Weldon Estate Subdivision, a subdivision in Lot 37 of Waverly Subdivision as recorded in Plat Book 7 Page 12 of the St. Louis County Recorder's Office, being bounded north by Lindbergh Boulevard, 150 feet wide, abutting thereon 811.11 feet, more or less; bounded southeast by Bridgeton Station Road, 70 feet wide, abutting thereon 680.88 feet, more or less, and bounded southwest by property of the City of St. Louis, a municipal corporation, abutting thereon 440 feet, more or less; all the roads and streets lying within the above-described tracts of land shall be vacated and abolished.

[1]For airport name change, see § 18.04.010.

L. *Ordinance 55149, 1968.*

The Mayor and the Comptroller, are authorized and directed, if reasonably possible, to purchase, otherwise, the City Counselor is authorized and directed to condemn, for public airport use a certain ground leasehold and its subsequently constructed United States Post Office improvements on Lambert-St. Louis Municipal Airport, [1] the public utility in the county, owned in fee and operated by the City; such improvements having been constructed by certain persons as tenant assignees from the government of such ground leasehold theretofore leased to the government by the City for an initial twenty-year term and four five-year renewal options for such construction and for Post Office operation; and such ground leasehold thus improved having been reassigned to the government for a term of years, subject, however, to Sections 11, 13, 14, 24, 25 and 26 of Ordinance 53224.

The said leased part of Lambert-St. Louis Municipal Airport is described as a tract of land in the county and state, and in United States Survey 2524 and more particularly described as follows:

Beginning at an angle point in the north right-of-way line of Interstate Route 70, distant 200 feet perpendicularly north of center line Station 384 + 00 on the center line of said Interstate Route 70; thence eastwardly along a line having an interior angle of 98 degrees 05 minutes from said line which is perpendicularly north of said center line at Station 384 + 00 a distance of 252.05 feet to the point of beginning of the tract hereinafter described; said beginning point being distant 10 feet north of and parallel to the north edge of the 20-foot pavement of the south lane of Natural Bridge Road (abandoned); thence northeastwardly and at a right angle to the said north edge of the 20-foot pavement of the south lane of Natural Bridge Road a distance of 151.89 feet to a point; thence northwestwardly along a line having an interior angle of 90 degrees 04 minutes 40 seconds with the last described line a distance of 5.00 feet to a point; thence northwardly along a line having an exterior angle of 224 degrees 50 minutes 20 seconds to the last described line, being also the western edge of the east access road in said Lambert-St. Louis Municipal Airport, a distance of 218.46 feet to a point; thence northwestwardly along a line having an interior angle of 135 degrees 05 minutes to the last described line a distance of 41.30 feet to a point; thence southwestwardly along a line which is at a right angle to the last described line a distance of 296.15 feet to a point of curve; thence along a curve to the left having a radius of 10 feet a distance of 15.71 feet to a point of tangency being 10 feet north of and parallel to the north line of the 20-foot wide pavement of the south lane of Natural Bridge Road (abandoned); thence, southeastwardly along a line which is 10 feet north of and parallel to the north line of the

20-foot pavement of the south lane of Natural Bridge Road (abandoned), a distance of 191 feet to the point of beginning of the tract heretofore described.

The City Counselor is authorized and directed, as a condition precedent to institution of any such condemnation proceeding, to obtain from the government its consent to be made a party defendant therein.

[1]For airport name change, see § 18.04.010.

M. *Ordinance 55646, 1970.*

There is established a public addition to the area of the public airport and landing field owned and operated by the City, officially named Lambert-St. Louis Municipal Airport[1] and located in the county and state, and for acquisition of such addition, the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed, under power in the City Charter, and in accordance with the statutes of the state to condemn certain private real property situated in the county and state and described as follows:

A parcel of land in United States Survey Six hundred fifty-six (656), Township Forty-six (46) North, Range six (6) East, located in Saint Louis County, Missouri; more particularly described as follows:

Beginning at the intersection of the eastern line of Airport Road and the southern line of Interstate Highway 70; thence easterly along the southern line of Interstate 70 with the following sources and bearings; north 80°22′ east, four hundred forty-nine and seventy-two hundredths feet (449.72′) to an iron pipe; thence north 81°34′ east, one hundred and seventy-nine and twenty-hundredths feet (179.20′) to an iron pipe; thence south 13°00′ east, two hundred seventy-six and eighty-five hundredths feet (276.85′) to an iron pipe; thence south 75°18′ east, seventy-one and thirteen hundredths feet (71.13′) to a point, thence southerly along a line with the following course and bearing; south 6°33′ west seven hundred sixty-five and sixteen hundredths feet (765.16′) to the northern line of Natural Bridge Road; thence northwesterly along the northern line of Natural Bridge Road with the following courses and bearings: North 50°04′ west, seven hundred two and eight hundredths feet (702.08′) to an iron pipe; thence north 48°32′ west, two hundred eighty and sixty-five hundredths feet (280.65′) to a cross on an inlet on the eastern line of Airport Road; thence northerly along the eastern line of Airport Road with the following courses and bearings; north 9°1′ east, forty-nine and forty-nine hundredths feet (49.49′) to an iron pipe at the beginning of a five hundred eighty foot (580′) radius curve concave northwesterly; thence two hundred twenty-four and five hundredths feet (224.05′) along said curve whose chord lies north 18°25′ east, two hundred twenty-two and sixty-six hundredths feet (222.66′), thence north 7°21′ east, fifty and thirty-nine hundredths feet (50.39′) to an iron pipe at the point of beginning; also

Beginning at an iron pipe at the intersection of the southern line of Interstate Highway 70 and the western line of Brown Road; thence southerly along the western line of Brown Road with the following courses and bearings; south 5°29′ west, one hundred fifty-two and fifty hundredths feet (152.50′) to an iron pipe; thence south 6°33′ west, seven hundred eleven and eleven hundredths feet (711.11′) to an iron pipe; thence south 68°15′ west, fifty-nine and ten hundredths feet (59.10′) to an iron pipe on the northern line of Natural Bridge Road; thence northwesterly along the northern line of Natural Bridge Road with the following course and bearing: North 50°04′ west, three hundred ten and thirty-eight hundredths feet (310.38′) to a point; thence northerly along a line with the following course and bearing; north 6°33′ east, seven hundred sixty-five and sixteen hundredths feet (765.16′) to the southern line of Interstate Highway 70; thence easterly along the southern line of Interstate Highway 70; with the following course and bearing; south 75°18′ east, three hundred eleven and fifty-seven hundredths feet (311.57′) to an iron pipe at the point of beginning.

[1]For airport name change, see § 18.04.010.

N. *Ordinance 55885, 1971.*

There is established a public addition to the area of the public airport and landing field owned and operated as such by the City, officially named St. Louis International Airport[1] and located in the county and state, and for acquisition of such addition the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed, under power in the City Charter and in accordance with the statutes of the state to condemn, certain private real property situated in the county and state and described as follows:

Part of Lot 5 of Lewellyn Brown Estate Partition, according to plat "A" filed with the Commissioners' Report in Partition of the Estate of Lewellyn Brown, deceased, in U.S. Survey 656 Township 46 North Range 6 East, according to plat thereof recorded in Book M-6 Pages 252 and 253 of the St. Louis City (former County)

Records, bounded north by property of the City of St. Louis, abutting thereon 622.63 feet; south by the north line of Interstate Highway 70; east by property of the City of St. Louis, abutting thereon 1192.29 feet, and west by Brown Road, 40 feet wide.

[1]For airport name change, see § 18.04.010.

O. *Ordinance 55887, 1971.*

There is established a public addition to the area of the public airport and landing field owned and operated as such by the City, officially named St. Louis International Airport[1] and located in the county and state, and for acquisition of such addition the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed, under power in the City Charter and in accordance with the statutes of the state to condemn, certain private real property situated in the county and state and described as follows:

Lots 11, 12, 13, 14, 27, 28, 29, 30, 31, 32, 33, 34 and 35 of Doodles Dale Plat Two, according to the plat thereof recorded in Plat Book 82 Page 33 of the St. Louis County Recorder's Office; also Lots 61, 63, 64, 65, 66, 67 and 68 of Doodles Dale Plat Four, according to the plat thereof recorded in Plat Book 89 Page 42 of the St. Louis County Recorder's Office; also Lots 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, and 102 of Doodles Dale Plat Five, according to the plat thereof recorded in Plat Book 98 Page 45 of the St. Louis County Recorder's Office; also Lots 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113 and 114 of Doodles Dale Plat Six, according to the plat thereof recorded in Plat Book 99 Page 98 of the St. Louis County Recorder's Office; also Lots 1, 2, 3, 4, 5, 6, 7, 8, 9, and 10 of Greenleigh, a Subdivision in Share 9 of Lucas Subdivision of California Farm in U.S. Survey 101, Township 46 North, Range 6 East, according to the plat thereof recorded in Plat Book 56 Page 13 of the St. Louis County Recorder's Office; also a tract of land being part of Share 9 of Lucas Subdivision of the California Farm in U.S. Survey 101, Township 46 North, Range 6 East and bounded as follows: North by the south line of Lots 1 through 10, inclusive of Greenleigh, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 56 Page 13 of the St. Louis County Records, south by the north line of Doodles Dale Plat Six, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 99 Page 98 of said county records, east by the west line of Doodles Dale Plat Two, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 82 Page 33 of said county records and by the west line of Doodles Dale Plat Five, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 98 Page 45 of said county records, west by the east line of property conveyed to the City of St. Louis, by deed recorded in Book 5199 Page 363 of the St. Louis County Recorder's Office; also Part of Shares 8 and 9 of Lucas Subdivision of the California Farm in U.S. Survey 101 Township 46 North, Range 6 East and described as follows: Beginning at a point in the south line of said Share 9 of the Lucas Subdivision of the California Farm, said point being the most southern corner of Lot 79 of Doodles Dale Plat 5, a Subdivision in St. Louis County, Missouri, as per plat thereof recorded in Plat Book 98 Page 45 of the St. Louis County Records; thence north 51 degrees 3 minutes 24 seconds east along the southeast line of said Lot 79, a distance of 109.62 feet to the most eastern corner of said Lot 79; thence north 15 degrees 14 minutes east along the east lines of Lots 78, 77 and 76 a distance of 213.72 feet to a point, said point being the southwest corner of Lot 64 of Doodles Dale Plat 4, a Subdivision in St. Louis County, Missouri, as per plat thereof recorded in Plat Book 89 Page 42 of the St. Louis County Records; thence south 83 degrees 10 minutes east and along the south lines of Lots 64, 65, 66, 67, 68, 69, 70 and 71, a distance of 560.92 feet to a point, said point being the most western corner of Lot 53 of Doodles Dale Plat 3, a Subdivision in St. Louis County, Missouri, according to the plat thereof recorded in Plat Book 86 Page 22 of the St. Louis County Records; thence south 50 degrees 50 minutes 11 seconds east along the southwest line of Lots 53 and 52, a distance of 93.49 feet to a point, said point being a corner of Lot 52 of said Doodles Dale Plat 3; thence south 83 degrees 10 minutes east and along the south line of said Lot 52, a distance of 111.69 feet to a point in the west line of Onnie Rei Drive, 50 feet wide, as laid out in said Plat of Doodles Dale Plat 3; thence south 6 degrees 50 minutes west, 70 feet to a point in the north line of Deborah Jean Drive, 50 feet wide, as laid out in said Plat of Doodles Dale Plat 3; thence north 83 degrees 10 minutes west along the north line of said Deborah Jean Drive, 20 feet to a point; thence south 6 degrees 50 minutes west 50 feet to a point in the south line of said Deborah Jean Drive; thence south 83 degrees 10 minutes east and along the south line of Deborah Jean Drive, a distance of 81.31

feet to a point, said point being the northwest corner of Lot 51 of said Doodles Dale Plat 3, thence south 6 degrees 50 minutes west and along the west line of said Lot 51, a distance of 120 feet to a point in the south line of Lucas Subdivision of the California Farm and thence along the south line of said Lucas Subdivision of the California Farm north 83 degrees 10 minutes west 920.60 feet to the point of beginning, according to Survey thereof executed by The Sterling Surveying Company during the month of June, 1963; all the roads and streets lying within the above-described tracts of land shall be vacated and abolished.

[1]For airport name change, see § 18.04.010.

P. *Ordinance 56086, 1971.*

There shall be and is hereby established a public addition to the area of the public airport and landing field owned and operated as such by the City of St. Louis, now officially named Lambert-St. Louis International Airport[1] and located in the County of St. Louis and State of Missouri, and for acquisition of such addition the Mayor and the Comptroller of the said City shall be and are hereby authorized and directed to purchase, or the City Counselor thereof shall be and is hereby authorized and directed, under power in the Charter of the said City and in accordance with the Statutes of the State of Missouri, to condemn certain private real property situated in the County of St. Louis and State of Missouri and described as follows, to-wit:

Lots 11, 12, 13, 14, 26, 27, 28, 29, 30, 31, 32, 33, 34 and 35 of Doodles Dale Plat Two, according to the plat thereof recorded in Plat Book 82 Page 33 of the St. Louis County Recorder's Office; also Lots 60, 61, 62, 63, 64, 65, 66, 67, 68 and 69 of Doodles Dale Plat Four, according to the plat thereof recorded in Plat Book 89 Page 42 of the St. Louis County Recorder's Office; also Lots 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101 and 102 of Doodles Dale Plat Five, according to the plat thereof recorded in Plat Book 98 Page 45 of the St. Louis County Recorder's Office; also Lots 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113 and 114 of Doodles Dale Plat Six, according to the plat thereof recorded in Plat Book 99 Page 98 of the St. Louis County Recorder's Office; also Lots 1, 2, 3, 4, 5, 6, 7, 8, 9 and 10 of Greenleigh, a Subdivision in Share 9 of Lucas Subdivision of California Farm in U.S. Survey 101, Township 46 North, Range 6 East, according to the plat thereof recorded in Plat Book 56 Page 13 of the St. Louis County Recorder's Office; also a tract of land being part of Share 9 of Lucas Subdivision of the California Farm in U.S. Survey 101, Township 46 North, Range 6 East and bounded as follows: North by the south line of Lots 1 through 10, inclusive of Greenleigh, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 56 Page 13 of the St. Louis County Records, south by the north line of Doodles Dale Plat Six, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 99 Page 98 of said county records, east by the west line of Doodles Dale Plat Two, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 82 Page 33 of said County Records and by the west line of Doodles Dale Plat Five, a Subdivision in St. Louis County, according to the plat thereof recorded in Plat Book 98 Page 45 of said county records, west by the east line of property conveyed to the City of St. Louis, by deed recorded in Book 5199 Page 363 of the St. Louis County Recorder's Office; also Part of Shares 8 and 9 of Lucas Subdivision of the California Farm in U.S. Survey 101 Township 46 North, Range 6 East and described as follows: Beginning at a point in the south line of said Share 9 of the Lucas Subdivision of the California Farm, said point being the most southern corner of Lot 79 of Doodles Dale Plat 5, a Subdivision in St. Louis County, Missouri, as per plat thereof recorded in Plat Book 98 Page 45 of the St. Louis County Records; thence north 51 degrees 3 minutes 24 seconds east along the southeast line of said Lot 79, a distance of 109.62 feet to the most eastern corner of said Lot 79; thence north 15 degrees 14 minutes east along the east lines of Lots 78, 77 and 76 a distance of 213.72 feet to a point, said point being the southwest corner of Lot 64 of Doodles Dale Plat 4, a Subdivision in St. Louis County, Missouri, as per plat thereof recorded in Plat Book 89 Page 42 of the St. Louis County Records; thence south 83 degrees 10 minutes east and along the south lines of Lots 64, 65, 66, 67, 68, 69, 70 and 71, a distance of 560.92 feet to a point, said point being the most western corner of Lot 53 of Doodles Dale Plat 3, a Subdivision in St. Louis County, Missouri, according to the plat thereof recorded in Plat Book 86 Page 22 of the St. Louis County Records; thence south 50 degrees 50 minutes 11 seconds east along the southwest line of Lots 53 and 52, a distance of 93.49 feet to a point, said point being a corner of Lot 52 of said Doodles Dale Plat 3; thence south 83 degrees 10 minutes east and along the south line of said Lot 52, a distance of 111.69

feet to a point in the west line of Onnie Rei Drive, 50 feet wide as laid out in said Plat of Doodles Dale Plat 3; thence south 6 degrees 50 minutes west, 70 feet to a point in the north line of Deborah Jean Drive, 50 feet wide, as laid out in said Plat of Doodles Dale Plat 3; thence north 83 degrees 10 minutes west along the north line of said Deborah Jean Drive, 20 feet to a point; thence south 6 degrees 50 minutes west 50 feet to a point in the south line of said Deborah Jean Drive; thence south 83 degrees 10 minutes east and along the south line of Deborah Jean Drive, a distance of 81.31 feet to a point, said point being the northwest corner of Lot 51 of said Doodles Dale Plat 3, thence south 6 degrees 50 minutes west and along the west line of said Lot 51, a distance of 120 feet to a point in the south line of Lucas Subdivision of the California Farm and thence along the south line of said Lucas Subdivision of the California Farm north 83 degrees 10 minutes west 920.60 feet to the point of beginning, according to Survey thereof executed by The Sterling Surveying Company during the month of June, 1963; all the roads and streets lying within the above-described tracts of land shall be vacated and abolished.

[1]For airport name change, see § 18.04.010.

Q. *Ordinance 56826, 1974.*

There is established an addition to the public airport and landing field owned and operated as such by the City, which is officially named Lambert-St. Louis International Airport[1] and located in the county and state; and the Mayor and the Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed to file a petition in the Circuit Court of the county under power in the City Charter and the statutes of the state to condemn, certain private real property situated in the county and described as follows:

Part of Lots 1, 2, 3 and 4 of the First Subdivision of Bridgeton Commons, in U.S. Survey 1196, Township 46 North, Ranges 5 and 6 East, and described as follows:

Beginning in the southeast line of a larger tract of land containing 73 acres (of which this tract is a part) conveyed to Frank Klaas and wife, by deed recorded in Book 328 Page 77 of the St. Louis County Records, at the most eastern corner of tract of 24 acres conveyed to Joseph B. Klaas and wife by deed recorded in Book 1922 Page 332 of said records; thence north 37 degrees 25 minutes west along the northeast line of said 24-acre tract, 739 feet to the most southern corner of tract of land conveyed to Charles F. Feltz and wife, by deed recorded in Book 2183 Page 148 of said records; thence north 52 degrees 35 minutes east along the southeast line of said Feltz tract 513.28 feet to the southwest line of County Road; thence southeastwardly along the southwest line of said County Road 881.50 feet to the southeast line of said tract of 73 acres; thence south 52 degrees 31 minutes west along said last mentioned line 989.65 feet to the beginning; which parts of said Lots are held under Indentures of Lease, recorded in Book L4 Page 415, Book A-4 Page 88, Book A-4 Page 89 and Book I-4 Page 33 of the records of the City (former County) of St. Louis, all dated from June 18, 1844 and for a term of 999 years, Excepting Therefrom the northwest 3 acres conveyed to Fred Lueck and Frances Lueck, his wife, by deed recorded in Book 2420 Page 120.

[1]For airport name change, see § 18.04.010.

R. *Ordinance 57015, 1975.*

There is established an addition to the public airport and landing field owned and operated as such by the City, which is officially named Lambert-St. Louis International Airport[1] and located in the county and state; and the Mayor and Comptroller are authorized and directed to purchase, or the City Counselor is authorized and directed to file a petition in the Circuit Court of the county under power in the City Charter and the statutes of the state to condemn, certain private real property situated in the county and state and described as follows:

Lot 1 of the Re-Subdivision of part of Lots 4 and 5 of the First Subdivision of Bridgeton Commons, according to the plat thereof recorded in Plat Book 103 Page 7 of the St. Louis County Records.

[1]For airport name change, see § 18.04.010. (1994 C., § 18.04.030)

18.04.040 Dedication of airport property.

The Mayor and Comptroller are authorized and directed to dedicate to highway use for the widening and relocation of proposed State Highway Route STT, now generally known as Brown Road, strips of land of varying and irregular widths forming part of the public airport and landing field and adjunctive land thereto, owned by the City, known as Lambert-St. Louis Municipal Airport[1] and located in U.S. Surveys 5, 3096, 2524 and fractional sections 4, 5 and 9 in Township 46 North, Range 6 East, St. Louis County, Missouri, and more particularly described as follows:

Beginning at Station 25°00 on the center line of State Highway STT at a point 689.27 feet northwest-

erly, measured along the southerly line of said U.S. Survey 5, and 10 feet southwesterly at right angles from said Survey line; thence south 52°44′ east a distance of 131.3 feet to T.S. Station 26°31.3; thence southeasterly on the arc of a spiral curve to the left, having a length of 150 feet and a spiral angle of 4°30′, a distance of 120.57 feet to Grantor's northwesterly property line at Station 27°51.87; thence continuing southeasterly on said spiral curve a distance of 29.43 feet to S.C. Station 27°81.3; thence easterly on the arc of a circular curve to the left, having a radius of 955.37 feet, a distance of 598.33 feet to C.S. Station 33+79.63; thence easterly on the arc of a spiral curve to the left, having a length of 150 feet and a spiral angle of 4°30′, a distance of 150 feet to S.T. Station 35°29.63; thence north 82°22′ east a distance of 591.35 feet to T. S. Station 41°20.98; thence easterly on the arc of a spiral curve to the right, having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to S.C. Station 42°70.98; thence easterly on the arc of a circular curve to the right having a radius of 955.37 feet, a distance of 423.33 feet to C.S. Station 46°94.31; thence easterly on the arc of a spiral curve to the right having a length of 150 feet and a spiral angle of 4°30′, a distance of 150 feet to S.T. Station 48°44.31; thence south 63°14′ east a distance of 54.64 feet to equation; Station 48°98.95 back equals Station 49°01.22 forward; thence continuing south 63°14′ east a distance of 1208.68 feet to the center line of Eva Avenue (40 feet wide) at Station 61°09.9, which point being north 7°40′ east a distance of 3.93 feet from the north line of right-of-way of the Wabash Railroad; thence continuing south 63°14′ east across the right-of-way of the Wabash Railroad a distance of 258.97 feet to T.S. Station 63°69.87; thence southeasterly on the arc of a spiral curve to the right, having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to S.C. Station 65°19.87; thence southeasterly on the arc of a circular curve to the right having a radius of 573.69 feet, a distance of 489.83 feet to C.S. Station 70°09.77; thence southeasterly on the arc of a spiral curve to the right having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to a point in Brown Road at S.T. Station 71°59.7; thence south 0°45′ west along Brown Road a distance of 1754.8 feet to T. S. Station 89° 14.5; thence southerly on the arc of a spiral curve to the left, having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to S.C. Station 90°64.5; thence southeasterly on the arc of a circular curve to the left having a radius of 573.69 feet, a distance of 579.17 feet to C.S. Station 96°43.67; thence southeasterly on the arc of a spiral curve to the left having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to a point in Airport Road (70 feet wide) at S.T. Station 97°93.67; thence south 72°10′ east a distance of 38.91 feet to a point in Airport Road at T.S. Station 98°32.58; said point being north 72°10′ west a distance of 20.25 feet from a point on the south line of Section 4, 2581.32 feet westerly of the southeast corner of said Section; thence southeasterly on the arc of a spiral curve to the right having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to S.C. Station 99°82.58; thence southeasterly on the arc of a circular curve to the right having a radius of 573.69 feet, a distance of 579.67 feet to a point in Airport Road (80 feet wide) at C.S. Station 105°62.25; thence southerly on the arc of a spiral curve to the right having a length of 150 feet and a spiral angle of 7°30′, a distance of 150 feet to S.T. Station 107°12.25; in the center line of Airport Road (80 feet wide); thence south 0°48′ west along the center line of Airport Road a distance of 200 feet to the point of ending.

Strip No. 1. The land described comprises all of Grantor's land in said U.S. Surveys 5 and 3096, and in said fractional Sections 4 and 5, lying within the southerly line of Brown Road and a line 75 feet perpendicularly distant northerly of the center line of State Highway STT, from Grantor's northwesterly property line at Station 27°51.87 to Station 48°44.31, and all of Grantor's land in said fractional Section 4 lying within lines 75 feet perpendicularly distant on each side of said center line from said Station 48°44.31 to the center line of Eva Avenue (40 feet wide) at Station 61°09.9.

Strip No. 2. Also all of Grantor's land in said fractional Section 4 lying within lines 75 feet perpendicularly distant on each side of said center line from the south line of right-of-way of the Wabash Railroad (100 feet wide) at Station 63°75.24 to Station 70°09.7 and all of Grantor's land in said fractional Section 4 lying within the east line of Brown Road and a line 50 feet perpendicularly distant westerly of said center line from said Station 70°09.7 to Station 89°00, and all of Grantor's land in said fractional Section 4 lying within the east line of Brown Road and a line 60 feet perpendicularly distant westerly of said center line from said Station 89°00 to the point of intersection of the west line of Brown Road and said line 60 feet perpendicularly distant westerly of said center line at Station 91°79.16.

Strip No. 3. Also all of Grantor's land in said fractional Section 9 of U.S. Survey 2524, lying south of the north line of Airport Road (70 feet wide) running east and west and west of the east line of Airport Road, running north and south and northerly and easterly of a line 60 feet perpendicularly distant southwesterly of said center line of State Highway STT from Station 96°06 to Station 107° 12.25; and all of Grantor's land in said Section 9 of U.S. Survey 2524 lying within the east line of Airport Road and a line 50 feet perpendicularly distant west of said center line of State Highway STT from said Station 107°12.25 to Station 108°00; also additional parcels as follows:

A parcel adjoining the southerly line of Wabash Avenue (60 feet wide) and adjoining the southwesterly line of second described parcel, described as follows:

From Station 63°75.25 on the center line of said State Highway STT at its intersection with the south line of right-of-way of the Wabash Railroad (100 feet wide), being also the northerly line of Wabash Avenue (60 feet wide) measured north 86°54′ west along said right-of-way line a distance of 5.86 feet to a point; thence south 26°46° west a distance of 65.51 feet to a point in the south line of Brown Road; thence north 86°54′ west along said south line of Brown Road a distance of 17.79 feet to a point in the southwesterly line of second described parcel, which is the point of beginning; thence continuing north 86°54′ west along said street line a distance of 268.78 feet to a point; thence south 78°24′ east a distance of 101. 12 feet to a point 15 feet perpendicularly distant southerly from said street line; thence south 86°54′ east a distance of 180 feet to a point; thence south 63°15′ east a distance of 139.99 feet to a point in the southwesterly line of second described parcel; thence northwesterly along said southwesterly line of second described parcel a distance of 156.84 feet to the point of beginning.

Also a parcel described as beginning at a point in the westerly line of second described parcel opposite Station 73°00 on the center line of State Highway STT; thence north 0°45 east along the west line of second described parcel a distance of 140.3 feet to a point opposite Station 71°59.7 on said center line; thence north 1°42′ west along the westerly line of second described parcel a distance of 143.34 feet to a point opposite Station 70°09.7 on said center line; thence south 83°15′ west a distance of 25 feet to a point; thence south 5°43′ east a distance of 141.48 feet to a point; thence south 3°05′ east a distance of 140.63 feet to the point of beginning.

A parcel adjoining the westerly line of second described parcel, having a width of zero (0) feet opposite Station 87°00 on the center line of said State Highway STT, increasing to a width of 10 feet opposite Station 89°00.

Said parcels contain twelve and three hundred thirteen thousandths (12.313) acres, more or less, exclusive of land in present streets, roads and Wabash Railroad right-of-way.

All airport and landing field easements upon the said strips are vacated and abolished.

[1]For airport name change, see § 18.04.010. (1994 C., § 18.04.040; Ord. No. 45663, §§ 1, 2, 1951.)

18.04.050 Sale of airport property.

The Mayor and the Comptroller are authorized and directed to sell to the state acting by and through the State Highway Commission at a price of not less than one hundred eighty-five thousand dollars certain real estate belonging to the City, described as follows:

All that part of Grantor's land located in U.S. Survey 168, Township 46 North, Range 6 East, St. Louis County, Missouri, and described as beginning at a point in Grantor's most northwestern property corner, as set out by deed recorded in Book 5725 at Page 183 of the St. Louis County Records; thence easterly along Grantor's north property line to a point in Grantor's east property line to a point in Grantor's most northeastern property corner; thence southerly along Grantor's east property line to a point in Grantor's most southeastern property corner; thence westerly along Grantor's south property line a distance of 461.84 feet to a point; thence south 83 degrees 01 minutes 25 seconds east a distance of 70.93 feet to a point; thence south 76 degrees 55 minutes 44 seconds east a distance of 126.84 feet to a point; thence north 8 degrees 20 minutes 00 seconds east a distance of 100 feet to a point; thence north 53 degrees 05 minutes 10 seconds west a distance of 152.59 feet to a point; thence north 78 degrees 17 minutes 22 seconds west a distance of 169.80 feet to a point in Grantor's west property line; thence north along Grantor's west property line a distance of 32 feet to the point of beginning and containing 66,916 square feet of new right-of-way.

Also all abutter's rights of direct access from Grantor's abutting land in U.S. Survey 168, Township 46

North, Range 6 East, to the thruway of Interstate Route 70 and to Pear Tree Lane along a line described as beginning at a point in Grantor's west property line as set out in the above-mentioned Book and Page, said point being 32 feet south of Grantor's most northwest property corner and extending south 78 degrees 17 minutes 22 seconds east a distance of 169.80 feet to a point; thence south 53 degrees 05 minutes 10 seconds east a distance of 152.59 feet to a point; thence south 8 degrees 20 minutes 00 seconds west a distance of 100 feet to a point; thence north 76 degrees 55 minutes 44 seconds west a distance of 126.84 feet to a point; thence north 83 degrees 01 minute 25 seconds west a distance of 70.93 feet to a point in the existing north right-of-way line of Pear Tree Lane.

Also a temporary easement for the construction of a slope or terrace, having a uniform width of 5 feet and lying north, west, southwest and south of and adjoining the following-described line: Beginning at a point in Grantor's south property line as set out in the above-mentioned Book and Page, said point being 461.84 feet west of Grantor's most southeastern property corner; thence south 83 degrees 01 minute 25 seconds east a distance of 70.93 feet to a point; thence south 76 degrees 55 minutes 44 seconds east a distance of 126.84 feet to a point; thence north 8 degrees 20 minutes 00 seconds east a distance of 100 feet to a point; thence north 53 degrees 05 minutes 10 seconds west a distance 152.59 feet to a point; thence north 78 degrees 17 minutes 22 seconds west a distance of 169.80 feet to a point in Grantor's west property line. Said last-described tract is to provide for the construction of a slope or terrace and the party of the second part seeks only a temporary easement for this purpose. Upon completion of the contemplated improvement of the highway, the owner shall have full, free and uninterrupted use and possession of said tract.

Also a temporary easement for the construction of an entrance described as beginning at a point in Grantor's most southwestern property corner as set out in the above-mentioned Book and Page; thence southeasterly along Grantor's south property line a distance of 106.46 feet to a point; thence northeasterly at right angles to said south property line a distance of 20 feet to a point; thence northwesterly and parallel with Grantor's said south property line to a point in Grantor's west property line; thence southerly along Grantor's said west property line to the point of beginning. Upon completion of construction of said entrance the easement rights in said last-described tract shall cease and be no longer in effect.

Said above-described temporary easements contain 5,260 square feet of land. (1994 C., § 18.04.050; Ord. No. 56507, § 2, 1973.)

Chapter 18.08

AIRPORT AUTHORITY

Prior history: Ords. 47223, 54003; 1948 C. Ch. 4 §§ 1—5

City Counselor Ops.: 8623, 8824, 9322, 9354, 9725

Sections:

18.08.010 Established.

18.08.020 Director of Airports.

18.08.030 City Airport Commission.

18.08.040 Employees.

18.08.050 Management and development.

18.08.060 Contracts.

18.08.070 Fees and charges.

18.08.080 Concession contracts.

18.08.010 Established.

There is established the Airport Authority of the City pursuant to RSMo Ch. 305 (1959), which shall consist of the City Airport Commission, its Chief Executive Officer, and Airport Managers and other personnel as are necessary to carry the provisions of Chapters 18.08 and 18.12. (1960 C., § 70.010; 1994 C., § 18.08.010; Ord. No. 54999, § 1, 1968.)

Charter:

Art. I § 1(32) Public institutions and services

RSMo:

RSMo 305.170 (2016) Operation of airports by cities

Cases:

That part of St. Louis Ordinance 47223 delegating power to fix fees was unconstitutional for lack of standards to guide the airport commission. *Clay v. City of St. Louis,* 495 S.W. 2d 672 (1973). City may establish and maintain a municipal airport under Art. I § 1(32) of Charter. *Dysart v. St. Louis,* 321 Mo. 514, 11 S.W. 2d 1045.

McQuillin:

11.03 Airports

11.03a Operation, control and regulation of airports

18.08.020 Director of Airports.

A Director of Airports shall be the Chief Executive Officer of the Airport Authority of the City. The Director of Airports shall be appointed by the Mayor

for a term to run concurrently with the Mayor's term of office, or until his successor is appointed and qualified. The Director of Airports shall have:

A. Attained the age of thirty years;

B. Educational attainments or equivalent practical training approximating those necessary for graduation from a standard college or university with a degree in public administration, business administration, accounting, law, engineering or related fields;

C. During five of the ten years prior to appointment been actively engaged in operation, management, maintenance, accounting, design or construction work at or for air carrier airports. (1960 C., § 70.020; 1994 C., § 18.08.020; Ord. No. 54999, § 2, 1968.)

18.08.030 City Airport Commission.

The City Airport Commission, hereinafter called the "Commission," shall consist of the following members:

A. Director of Airports, who shall be Chairman of the Commission;

B. The Chairman of the Transportation and Commerce Committee of the Board of Aldermen (or such other committee to which, pursuant to the rules of the Board of Aldermen, bills affecting the airport are assigned);

C. The President of the Board of Aldermen;

D. The Comptroller;

E. Six members appointed by the Mayor;

F. On and after the effective date of that certain Cooperation Agreement between the City and St. Louis County, Missouri, authorized by Ordinance 61696 and the amendment authorized by Ordinance 65354, in addition to the six appointive members provided for in Subsection E, St. Louis County's Director of Aviation and four persons appointed by the County Executive of St. Louis County may be additional members of the Airport Commission as provided in such Cooperation Agreement and the amendment thereto;

G. On and after the effective date of that certain Cooperation Agreement between the City and St. Charles County, Missouri, authorized by Ordinance 64801, in addition to the six appointive members provided for in Subsection E of this section, one additional member of the Airport Commission may be appointed by the County Executive of St. Charles County, Missouri, as provided in such Cooperation Agreement;

H. On and after the effective date of that certain Cooperation Agreement between the City and St. Clair County, Illinois, authorized by Ordinance 64801, in addition to the six appointive members provided for in Subsection E of this section, one additional member of the Airport Commission may be appointed by the Chairman of the County Board of St. Clair County, Illinois, as provided in such Cooperation Agreement.

The terms of the appointive members serving on the City Airport Commission on the date the ordinance codified in this section becomes effective shall continue until their normal expiration dates, at which times the Mayor shall fill the expiring terms of members he appoints by making appointments for four-year terms. A majority of the Commission shall constitute a quorum for transacting business and every member shall be entitled to a vote. The Director and any member appointed by the Mayor may be removed upon three absences from meetings of the Commission in a calendar year or for other cause by the Mayor after written charges have been preferred and after a public hearing held on due notice to such member. Such member shall have the right to be heard in person or by counsel at any such public hearing. Each appointed member of the Commission shall be paid for each day on which he actually attends an official meeting of the Commission; the amount of pay shall be determined in accordance with the Charter and ordinances of the City. All members of the Commission shall be reimbursed for necessary traveling and other expenses incurred in the performance of their duties, subject to the approval of the Board of Estimate and Apportionment. (1960 C., § 70.030; 1994 C., § 18.08.030; Ord. No. 65354, § 4, 2001; Ord. No. 64801, § 4, 1999; Ord. No. 61696, § 4, 1989; Ord. No. 59242, § 2, 1984; Ord. No. 54999, § 3, 1968.)

Editor's Note:

Ordinance 59242 was approved August 6, 1984. The cooperative agreement in Ordinance 61696 was approved December 12, 1989.

18.08.040 Employees.

The Director of Airports is authorized to appoint, in accordance with the Charter and the ordinances of the City, the number of employees as is necessary in connection with the supervision, management and operation of the properties described in Section 18.08.050. (1960 C., § 70.040; 1994 C., § 18.08.040; Ord. No. 54999, § 4, 1968.)

18.08.050 Management and development.

The Commission shall be responsible for the planning, development, management and operation of all

City airports and all airport property, installations, and auxiliary facilities, including any lands or properties heretofore or hereafter owned and acquired by the City for airport purposes; or the processing, transporting and otherwise facilitating the movement of air passengers and property, and shall be responsible for the promotion and development of additional and improved aviation services as needed by the City. The Director shall be the Chief Executive Officer of the Airport Commission. (1960 C., § 70.050; 1994 C., § 18.08.050; Ord. No. 54999, § 5, 1968.)

City Counselor Ops.: 8852, 8896, 9246

18.08.060 Contracts.

The Director of Airports with the approval of the Airport Commission and the Board of Estimate and Apportionment shall have the power to enter into contracts, leases and agreements for concessions, rentals or use of the airport property and facilities. Any rental, lease, or agreement excluding fixed rate permits that exceed a period of three years must be approved by the Board of Aldermen and authorized by ordinance. All non-compete clauses and agreements must be approved by the Board of Aldermen and authorized by ordinance. All contracts, leases and agreements shall be executed in the name of the City of St. Louis and shall be signed by the Director of Airports and countersigned by the Comptroller. No lease or agreement requiring Aldermanic approval shall be extended beyond its expiration date without Aldermanic approval. (1960 C., § 70.060; 1994 C., § 18.08.060; Ord. No. 60900, § 2, 1988; Ord. No. 54999, § 6, 1968.)

18.08.070 Fees and charges.

The Director of Airports with approval of the Commission shall have power to establish schedules fixing all fees and charges, other than those contained in contracts, leases, and agreements entered into under Section 18.08.060, for use of the airport, landing field, hangars, and space in buildings located in and on the airport and to modify the same from time to time. (1960 C., § 70.070; 1994 C., § 18.08.070; Ord. No. 54999, § 7, 1968.)

City Counselor Ops.: 9579

18.08.080 Concession contracts.

Contracts for concessions shall be let:

1. On public bids to the highest bidder, reserving to the Airport Authority the right to reject any and all bids and the right to limit bids to qualified bidders as determined by the Airport Authority; or

2. Pursuant to a request for proposals process as determined by a Selection Committee consisting of (1) the Director of Airports, or their designee, who shall act as chairman of the committee; (2) one current employee of the Airport Authority selected by the Director of Airports; (3) one current employee of the City selected by the Mayor; (4) one current employee of the City selected by the Comptroller; and (5) one current employee of the City selected by the President of the Board of Aldermen. Each member of the committee shall be a voting member.

The Airport Authority shall in its sole discretion determine which procurement process to utilize when seeking to let any concession opportunity. The Director of Airports may promulgate rules and regulations, to be approved by the Commission, providing for administration of the request for proposals process.
(1960 C., § 70.080; 1994 C., § 18.08.080; Ord. No. 71531, § 1, 7-6-2022; Ord. No. 54999, § 8, 1968.)

Chapter 18.10

CONSENT OF CITY TO TRANSFER OF RIGHTS

Sections:

18.10.010	**Adopted.**
18.10.020	**Prior consent of City—Required.**
18.10.030	**Terms and conditions—To be prescribed by Director of Airports.**
18.10.040	**Decision based on interests of City.**
18.10.050	**Violation.**
18.10.060	**Applicability.**
18.10.070	**Conflict with FAA regulations.**

18.10.010 Adopted.

It is in the best interests of the City of St. Louis (the "City"), residents of the City and the metropolitan St. Louis area, airlines, airline passengers and those employed at Lambert-St. Louis International Airport (the "airport") or in industries dependent upon the airport, that the City, pursuant to its authority under state law, adopt the Nonassignment Ordinance codified in this chapter in order to: preserve and enhance the safety, capacity and security at the transportation facilities at the airport; protect the vital financial interests of the City, its residents and residents of the metropolitan St. Louis area; assure that air travel to and from the airport is not interrupted; safeguard the City from potential financial hardship caused by the deteriorating financial

condition of the airline industry; and ensure health, safety and welfare of those who travel to and from the airport and those employed at the airport. (1994 C., § 18.10.010; Ord. No. 62475, § 1, 1991.)

18.10.020 Prior consent of City—Required.

No permit, license, contract, lease or other agreement, or interest therein, for space, services or facilities at the airport shall be assumed, assigned or otherwise transferred by a party to such permit, license, contract, lease or agreement without prior consent in writing from the Director of Airports with the approval of the airport Commission, which consent shall not be unreasonably withheld. The foregoing shall not prevent assignment of a permit, license, contract, lease or other agreement, or interest therein, by an airline to any corporation with which the airline may merge or consolidate, or which may succeed to the business of the airline. (1994 C., § 18.10.020; Ord. No. 62475, § 2, 1991.)

18.10.030 Terms and conditions—To be prescribed by Director of Airports.

No person, corporation or other entity may engage in any commercial activity on the premises of the airport without the prior written consent of, and under terms and conditions prescribed by, the Director of Airports with the approval of the Airport Commission, other appropriate public body or public official. (1994 C., § 18.10.030; Ord. No. 62475, § 3, 1991.)

18.10.040 Decision based on interests of City.

Where this chapter requires the consent of the Director of Airports or other appropriate public body or public official, for a proposed assumption, assignment or other transfer (hereinafter collectively a "proposed transfer"), the Director of Airports or other public official shall base his decision upon whether the best interests of the City, the City's residents and those of the traveling public would be served by the proposed transaction. Where this chapter requires consent of the Airport Commission or other public body for a proposed transfer, the Airport Commission or other public body shall base its decision upon whether the best interests of the City, the City's residents and those of the traveling public would be served by the proposed transaction. Where this chapter requires consent of the Airport Commission or other public body for a proposed transfer, the Airport Commission or other public body shall base its decision upon whether the best interests of the City, the City's residents and those of the traveling public would be served by the proposed transaction. (1994 C., § 18.10.040; Ord. No. 62475, § 4, 1991.)

18.10.050 Violation.

Any assumption, assignment or other transfer promulgated in violation of this chapter shall be illegal, unenforceable and void. (1994 C., § 18.10.050; Ord. No. 62475, § 5, 1991.)

18.10.060 Applicability.

The terms, requirements and prescriptions of this chapter shall apply to all permits, licenses, contracts, leases and other agreements, or interests therein, for space, services or facilities at the airport existing at the time the ordinance codified in this chapter is enacted or anytime thereafter but shall not prevent any assignment or transfer specifically authorized by the terms of a permit, licenses, contract, lease or other agreement already existing at the time this chapter is enacted. (1994 C., § 18.10.060; Ord. No. 62475, § 6, 1991.)

18.10.070 Conflict with FAA regulations.

This chapter and the provisions herein are not intended to address matters regulated by the Federal Aviation Administration ("FAA regulations"). If any conflict is determined to exist between any provision in this chapter and FAA regulations, this chapter shall be construed as to defer to FAA regulations, without affecting the validity of this chapter. (1994 C., § 18.10.070; Ord. No. 62475, § 7, 1991.)

Chapter 18.12

AIRPORT REVENUE AND IMPROVEMENTS

City Counselor Ops.: 8824, 9322, 9354

Sections:

18.12.010 Accounting system.
18.12.020 Airport revenue fund—Deposits.
18.12.030 Airport revenue fund—Allocations.
18.12.040 Construction fund.
18.12.050 Investments.
18.12.060 Budget.

18.12.010 Accounting system.

It shall be the duty of the Director of Airports to install and maintain a modern airport accounting system under which revenues, expenses, and capital expenditures with their related fixed charges classified accord-

ing to functional areas at the airport, as a guide to the airport management and to permit the determination of equitable rates and charges for use of the airport facilities. The accounts shall be audited by the City Comptroller and shall be open to examination by any member of the Board of Aldermen. (1960 C., § 71.010; 1994 C., § 18.12.010; Ord. No. 54999, § 9, 1968.)

18.12.020 Airport revenue fund—Deposits.

All revenues derived from the operation and use of airports and airport properties, installations and facilities, including the net rentals derived from the lease or use of any lands acquired for airport purposes but which are not immediately being used for airport purposes, shall be deposited in the City Treasury to the credit of the airport revenue fund of the City. The revenues shall be deposited and held in a bank account

or accounts separate from all other bank accounts of the City. (1960 C., § 71.020; 1994 C., § 18.12.020; Ord. No. 54999, § 10, 1968.)

18.12.030 Airport revenue fund—Allocations.

Sums in the airport revenue fund shall be set aside for, allocated and credited to the following separate accounts by the City Comptroller, and such allocations and credits shall be made on the first business day of each and every month:

A. To an account designated the airport operation and maintenance account there shall be credited a sum sufficient to pay the estimated cost of operating and maintaining the airports and airport facilities in good repair and working order during the month; the sum to be determined by the Commission.

B. To an account designated the airport revenue bond account there shall be credited in each month sums at least equal to one-sixth of the amount of interest that will become due on all airport revenue bonds then outstanding on the then-next interest payment date and, beginning twelve months prior to the first maturity date of any bonds issued for airport purposes, one-twelfth of the amount of principal that will become due on such bonds on the then next maturity date. Sums in the account shall be used only for the payment of the principal of and the interest on the airport revenue bonds of the City as the same shall become due.

C. Into an account designated the airport revenue bond reserve account there shall be deposited the sum of ten thousand dollars per month. The payments shall be continued until the amount deposited and held in the account shall equal six hundred thousand dollars. When and as long as the sum of six hundred thousand dollars shall be on deposit in the account, no further payments need be made, but should the account be reduced or depleted for any reason, including the payments of bonds or the interest thereon, additional deposits shall be made thereafter at the rate of ten thousand dollars per month until the account shall be replenished and shall have credited thereto not less than the aforesaid sum of six hundred thousand dollars. Sums in the account shall be deposited in a separate bank account, subject to the provisions of Section 18.12.050, and shall be used only for the payment of the principal of and the interest on the airport revenue bonds of the City, and only when and to the extent that other funds are not available for that purpose. Sums in the account shall not be used to pay bonds called for payment prior to maturity unless all bonds issued hereunder are then to be retired.

D. To an account designated the airport replacement, improvement, and contingent account there shall be credited the sum of fifteen thousand dollars per month. The credits shall be continued until the amount accumulated in the account shall equal six hundred thousand dollars. When and as long as the sum of six hundred thousand dollars shall be credited to the account, no further allocations need be made but should the account be reduced or depleted for the purposes hereinafter provided, additional credits shall be made thereafter at the rate of not less than fifteen thousand dollars per month until the account shall be replenished and shall have credited thereto not less than the aforesaid sum of six hundred thousand dollars. Sums in the account shall be expended for the making of replacements, extensions, and improvements to the airports and airport facilities, and for the purpose of meeting unforeseen contingencies and emergencies arising in the operation of the airports and airport facilities of the City.

E. At the end of each fiscal year any balance remaining in the airport revenue fund, after making the allocations and credits required under Subsections A, B, C, and D of this section, shall be allocated and credited to an account designated the airport reserve account. Sums in the account shall be expended only for the following purposes and in the following order of priority:

1. For payment to the general revenue fund of the City out of the gross receipts derived from the operation of airports and airport facilities of the City during the fiscal year last ended (excluding therefrom all income derived from investment of airport funds as set forth in Sections 18.12.030 and 18.12.040) a sum equivalent to any gross receipts tax required to be paid to the City by privately owned utilities; however, in no event shall such sum be greater than the amount credited to the airport reserve account during such fiscal year;

2. For extensions and improvements to the airports and airport facilities; or

3. To pay and redeem airport revenue bonds of the City called for redemption according to the terms thereof, or to purchase such bonds in the open market, if obtainable at less than the call price. (1960 C., § 71.030; 1994 C., § 18.12.030; Ord. No. 54999, § 11, 1968.)

18.12.040 Construction fund.

A construction fund shall be maintained in which shall be deposited:

A. The proceeds from the sale of airport revenue bonds;

B. Reversions of unneeded balances in appropriation ordinances when such appropriation has been made from the construction fund;

C. Grants received from state, federal or other agencies; and

D. Any other airport development funds received; and from the construction fund appropriations may be made to pay the costs of airport acquisition, development, improvement and construction. (1960 C., § 71.040; 1994 C., § 18.12.040; Ord. No. 54999, § 12, 1968.)

18.12.050 Investments.

All sums in the accounts created by Sections 18.12.030 and 18.12.040 shall be kept on deposit in a bank or banks which are members of the Federal Deposit Insurance Corporation and shall be secured continuously at all times as provided by the laws of the state for other funds of the City, or in the discretion of the Board of Estimate and Apportionment, upon certification of the Airport Commission that funds are available for investment or reinvestment, such sums or any part thereof may be invested or reinvested in bonds or other obligations of the United States of America maturing or being redeemable at or prior to the time when the funds may be required for use under the terms of this title. All income and profits arising from any such investments shall be credited to the airport revenue fund referred to in Section 18.12.020. (1960 C., § 71.050; 1994 C., § 18.12.050; Ord. No. 54999, § 13, 1968.)

18.12.060 Budget.

Prior to the commencement of each fiscal year the Director of Airports shall prepare a budget which shall be approved by the Commission and which sets out the estimated receipts and expenditures of the airports and airport facilities of the City for the then-ensuing fiscal year. This budget shall contain:

A. An estimate of the receipts expected to be derived from the operation of the airports and airport facilities;

B. A statement of the estimated cost of operating such airports and airport facilities during the next-ensuing fiscal year;

C. A statement of any unusual and extraordinary expenses of operation or maintenance which might be reasonably anticipated and an estimate of the cost thereof;

D. A statement of what replacements to the airports and airport facilities may be anticipated and the estimated cost thereof;

E. A statement of the amount of interest to become due during the ensuing year on the airport revenue bonds then outstanding;

F. A statement of the principal of such bonds which will become due absolutely by their terms during the next-ensuing fiscal year;

G. The amounts, if any, to be paid into the accounts established under Section 18.12.030.B, C, and D;

H. A statement of the total amount anticipated to be payable from the revenues of the airports and airport facilities during the next-ensuing year. (1960 C., § 71.070; 1994 C., § 18.12.060; Ord. No. 54999, § 14, 1968.)

Chapter 18.16

GIFTS TO AIRPORT

City Counselor Ops.: 8824, 9330

Sections:

18.16.010 Acceptance.
18.16.020 Committee.
18.16.030 Selections.
18.16.040 Special account.

18.16.010 Acceptance.

The Airport Commission with the approval of the Mayor is authorized and directed to accept, take charge of, for and on behalf of the City, any donation or gift in the form of a work of art, monument, mural, statuary, other personal property, including money, and real estate for the furtherance of the development of any airport owned or operated by the City, subject to terms and conditions as may be agreed upon between the donor or donors thereof and the Airport Commission with the approval of the Mayor. (1960 C., § 72.010; 1994 C., § 18.16.010; Ord. No. 49580, § 1, 1959.)

City Counselor Ops.: 9678

18.16.020 Committee.

A. The Mayor is authorized and directed to select a committee of seven (7) persons to study and approve

the design, artistic merits and proposed location of any work of art, monument, mural, statuary or other personal property proposed to be donated or to be given to the City to insure that the gift or donation will harmonize with the general design and character of and further development of any airport owned or operated by the City. The members of the committee shall be appointed by the Mayor and approved by the Board of Aldermen.

B. Of the seven (7) persons initially appointed by the Mayor, three (3) shall be appointed for terms of four (4) years each, two (2) shall be appointed for terms of three (3) years each, and two (2) shall be appointed for terms of two (2) years each. All persons thereafter shall be appointed to serve a four-year term. (1960 C., § 72.020; 1994 C., § 18.16.020; Ord. No. 68797, §§ 1, 2, 11-23-2010; Ord. No. 49580, § 2, 1959.)

18.16.030 Selections.

Should the gift or donation be in the form of money for the erection, purchase, selection or acquisition of a work of art, monument, mural or statuary according to the terms of the gift or donation, the committee is authorized to select the work of art, monument, mural or statuary on behalf of and for the City to carry out the terms of the gift or donation and shall be further empowered to select the person, firm or corporation to design, create and complete the work of art, monument, mural or statuary in carrying out the terms and conditions of the gift or donation. (1960 C., § 72.030; 1994 C., § 18.16.030; Ord. No. 49580, § 3, 1959.)

18.16.040 Special account.

Any gift or donation in the form of money accepted on behalf of the City shall be deposited into a special account by the Comptroller and the Comptroller shall draw his warrant on the account only for the purposes of carrying out the terms and conditions of the gift or donation. (1960 C., § 72.040; 1994 C., § 18.16.040; Ord. No. 49580, § 4, 1959.)

Title 19

(RESERVED)

Title 20

STREETS, SIDEWALKS AND BRIDGES

Editor's Note:

Ord. No. 68604, §§ 1—26, adopted March 16, 2010, repealed title 20 and enacted a new title as set out herein. The former title 20 pertained to similar subject matter. For a complete derivation of the former title 20, see the Ordinance Table and Disposition List and the Code Comparative Table at the end of this volume.

Constitution:

Art. VI § 19(a) Power of charter cities

Charter:

Art. I § 1(14) Streets, alleys, parks, sewers, etc.

Art. I § 1(15) Public buildings and other property

Art. I § 1(16) Harbor, wharves and ferries

RSMo:

RSMo 234.310 (2016) Charter city powers and funding

RSMo 234.330 (2016) Existing rights not impaired

Chapters:

20.12	**Street Naming**
20.14	**Street Openings and Dedications**
20.16	**House Numbering**
20.18	**Construction, Repair and Maintenance of Streets and Alleys**
20.20	**Temporary Closing of Streets**
20.22	**Areaway, Vaults in Streets and Sidewalks**
20.24	**Structures Overhanging or Crossing Streets**
20.26	**Construction, Repair and Maintenance of Sidewalks**

Chapter 20.12

STREET NAMING

Sections:

20.12.010	**Compliance with provisions required.**
20.12.020	**Procedure for naming or renaming a street.**
20.12.030	**Procedure for naming a new street within a resubdivision approved by the Board of Public Service.**
20.12.040	**Criteria for street names.**
20.12.050	**Designation of honorary street names.**

20.12.010 Compliance with provisions required.

On and after the effective date of this chapter, no new public street or other public right-of-way ("street") shall be named, nor shall any existing street be renamed nor shall any new public street within a resubdivision be named, except as provided by this chapter. (1994 C., § 20.12.010; Ord. No. 68604, § 2, 3-16-2010.)

20.12.020 Procedure for naming or renaming a street.

A. A petition shall be filed in the office of the Planning and Urban Design Agency on such forms and in such manner as the Agency may prescribe. Such petition must be initiated by the owners of fifty-one percent (51%) or more of the recorded parcels of land fronting on any such street and the Alderman within whose ward any such street is situated, or, if such street is within more than one ward, by the Aldermen of each such ward. Each petition shall include, but not be limited to:

1. The proposed name of the street;

2. A general location map of the street;

3. A statement documenting the proposed name's significance; and

4. If the petition seeks to rename an existing street, a statement documenting the existing street name's significance.

B. Within five (5) days after a petition for naming or renaming a street has been filed as provided above, the Director of the Planning and Urban Design Agency shall transmit to the Clerk of the Board of Aldermen, the Board of Public Service, and the Postmaster for the City, copies of the petition together with all exhibits and documents appurtenant thereto.

C. Within forty-five (45) days after such transmittal the Board of Public Service shall review the petition and the Postmaster for the City may review the petition and may transmit to the Planning and Urban Design Agency such advice and recommendations as they may deem appropriate.

D. The Planning and Urban Design Agency shall, prior to making its determination with respect to the petition, permit any interested party an opportunity to appear before the Planning Commission and be heard. In its discretion, the Commission may hold a public hearing regarding the petition.

E. After review and consideration of the petition, recommendations of the Board of Public Service, and the Postmaster for the City and comments received from other interested parties the Planning Commission shall:

1. Approve the petition as submitted; or

2. Approve the petition with such modifications or conditions as the Commission shall deem appropriate; or

3. Disapprove the petition.

Such determination shall be in writing and shall be made within ninety (90) days after filing of the petition, or if a public hearing is held, then within sixty (60) days after such public hearing; provided that the Commission may vote to extend such time period to permit additional studies or reports to be completed or for other good cause.

F. In the event of disapproval of the petition, the Commission shall state the reasons therefor and possible alternatives thereto, and shall forward a copy thereof to the petitioner, the Clerk of the Board of Aldermen, the Board of Public Service, and the Postmaster for the City.

G. In the event of approval of a petition, the Planning and Urban Design Agency shall cause to be prepared a bill for consideration by the Board of Aldermen. Within thirty (30) days after the Commission's approval of the petition, a copy of such bill shall be transmitted to the Clerk of the Board of Aldermen, the Board of Public Service, and the Postmaster of the City.

H. After such bill, as provided in Subsection G of this section, is introduced in the Board of Aldermen and assigned to the Board's appropriate committee, said bill shall not be voted on by the Board until a public hearing is held by the committee. At least fifteen (15) days prior to the public hearing, the committee shall require the Clerk of the Board of Aldermen to cause to be published in one (1) daily newspaper of general circulation in the City, a notice of the pendency of the bill. The notice shall contain a clear description of the location of the street, the proposed name, and the date, time and place of the hearing at which property owners affected thereby, or others interested therein, may appear before the aforesaid committee to be heard. Provided, however, that before any action shall be taken as provided in this section, the petitioner proposing such street name shall deposit with the Clerk of the Board of Aldermen the sum of one hundred dollars ($100.00) to cover the approximated cost of this procedure. Should said deposit be found to be insufficient to cover the actual costs of any newspaper publication herein provided, then petitioner, upon notice from the Clerk, shall immediately and prior to the insertion of any such publication, supply such additional sum of money so found to be required for this purpose. Provided further, however, that under no condition shall money be refunded for failure of said bill to be enacted into law. Any part of the money so deposited which is not expended by the Clerk shall be refunded to the petitioner. In addition, at least ten (10) days prior to the public hearing, the Clerk of the Board of Aldermen shall cause a placard containing the words "Proposed Street Name or Street Name Change in This Block" to be printed in large type and erected at each end of every block fronting said street. Such placards shall also have prominently displayed and firmly attached thereto a copy of the notice which appears in the daily newspapers.

I. Whenever a hearing is held pursuant to Subsection H of this section, the committee shall receive evidence for and against the proposed action and hear all protests; rule upon all protests which determination shall be final; and may continue the hearing from time to time. Proceedings shall terminate if protest is made by a majority of the property owners fronting any such street to be named or renamed by the bill. (1994 C., § 20.12.020; Ord. No. 68604, § 2, 3-16-2010.)

20.12.030 Procedure for naming a new street within a resubdivision approved by the Board of Public Service.

A. A petition shall be filed in the office of the Planning and Urban Design Agency on such forms and in such manner as the Agency may prescribe. Such petition must be initiated by the developer or his agent and the Alderman within whose ward any such street is situated, or, if such street is within more than one ward, by the Aldermen of each such ward. Each petition shall include, but not be limited to:

1. The proposed street name;

2. A general location map of the street;

3. A statement documenting the proposed name's significance.

B. Within five (5) days after a petition for naming a street has been filed as provided above, the Director of the Planning and Urban Design Agency shall transmit to the Clerk of the Board of Aldermen, the Board of

Public Service, and the Postmaster for the City, copies of the petition together with all exhibits and documents appurtenant thereto.

C. Within forty-five (45) days after such transmittal the Board of Public Service shall review the petition and the Postmaster for the City may review the petition and may transmit to the Planning and Urban Design Agency such advice and recommendations as they may deem appropriate.

D. The Planning Commission shall, prior to making its determination with respect to the petition, permit any interested party an opportunity to appear before the Commission and be heard. In its discretion, the Commission may hold a public hearing regarding the petition.

E. After review and consideration of the petition, recommendations of the Board of Public Service, and the Postmaster for the City of St. Louis, and comments received from other interested parties, the Planning Commission shall:

1. Approve the petition as submitted; or

2. Approve the petition with such modifications or conditions as the Commission shall deem appropriate; or

3. Disapprove the petition.

Such determination shall be in writing and shall be made within ninety (90) days after filing of the petition, or if a public hearing is held, then within sixty (60) days after such public hearing; provided, that the Commission may vote to extend such time period to permit additional studies or reports to be completed or for other good cause.

F. In the event of disapproval of the petition, the Commission shall state the reasons therefor and possible alternatives thereto, and shall forward a copy thereof to the petitioner, the Clerk of the Board of Aldermen, and the Board of Public Service, and the Postmaster for the City.

G. In the event of approval of a petition, the Planning and Urban Design Agency shall cause to be prepared a bill for consideration by the Board of Aldermen. Within thirty (30) days after the Commission's approval of the petition, a copy of such bill shall be transmitted to the Clerk of the Board of Aldermen, the Board of Public Service and the Postmaster for the City. (1994 C., § 20.12.030; Ord. No. 68604, § 2, 3-16-2010.)

20.12.040 Criteria for street names.

A street may be named for any person, place, creation, or number provided that:

A. It is conducive to good City planning, contributes to the conservation of property values and to the protection of the equity invested by residents and owners of property fronting on said street, as well as the general interests of the other citizens of the City; and

B. It has significance or value as part of the development, heritage, or cultural characteristics of the City, state, or nation and contributes to civic pride and wider public knowledge and appreciation of the heritage and history of St. Louis; and

C. It does not detract from our historical heritage by renaming a street which name has greater significance than the proposed name; and

D. It names or renames all segments of the same street within the boundaries of the City of St. Louis as to avoid the previous confusion that has resulted when just a portion of a street was renamed; provided, however, that a "street," "avenue," or "boulevard" designation may be changed to "place," "terrace" or other suitable designation if a segment of said street has been permanently closed by ordinance; and

E. When a street is to be named or renamed for a person:

1. The petition shall not be filed until after the first anniversary of such person's death; and

2. Only such person's last name shall be used as a street name unless additional identification is necessary to prevent a duplication of street names in the metropolitan area. (1994 C., § 20.12.040; Ord. No. 68604, § 2, 3-16-2010.)

20.12.050 Designation of honorary street names.

A. Whenever the Board of Aldermen for the City of St. Louis determines to recognize an individual or group of individuals by naming a street or other public easement in honor of such individual or group of individuals, the street or other public easement shall retain its official name and its legal status, and a suitable sign shall be installed by the Director of Streets at the location designated by the ordinance indicating the name of the individual or group of individuals to be so honored. The ordinance shall also include the basis for the individual or group of individuals to be so honored by an honorary street name.

B. The actual costs for the manufacturing, installation and any other related costs for the honorary

street name sign shall be paid to the Street Department prior to the manufacturing and installation of said sign by the individual or group of individuals requesting the honorary street name sign.

C. Sixty percent (60%) of the registered voters residing and/or owning a business on the block being renamed, shall indicate by petition that they desire the street to receive the designation of an honorary name. (1994 C., § 20.12.050; Ord. No. 68937, § 1, 7-5-2011)

Chapter 20.14

STREET OPENINGS AND DEDICATIONS

Sections:

20.14.010 **Subdivision plans.**

20.14.020 **Notice to Alderman of dedication.**

20.14.030 **Quitclaim deeds—Issuance.**

20.14.040 **Quitclaim deeds—Payments.**

20.14.050 **Redemption of property.**

20.14.060 **Notice to be given.**

20.14.070 **Plats to be furnished City Counselor.**

20.14.080 **Placing signs in streets or alleys to be vacated.**

20.14.090 **Street or alley vacation processing fee.**

20.14.010 Subdivision plans.

All plans of subdivisions, additions or partitions, containing dedications of streets, avenues, boulevards or alleys, shall be submitted to the Board of Public Service. After having been examined and approved by the Board, the subdivision, addition or partition shall be a part of the general plan for the location and grade of the streets within the City, and the Board of Public Service, through the President thereof, shall endorse thereon that the same is in accordance with the general plan of the City; provided, however, that in all cases where any lands within the City are subdivided or laid out in blocks, lots or sublots, the map or plat thereof shall bear the certificate of a responsible surveyor to the effect that the streets thereon represented are correctly shown and located, and they shall be designated as streets, if they have been or are dedicated or opened according to law, or as proposed streets if opening is incomplete. (1994 C., § 20.14.010; Ord. No. 68604, § 3, 3-16-2010.)

20.14.020 Notice to Alderman of dedication.

Whenever a petition or request is received by the Board of Public Service to approve a dedication or grant, absolute or conditional, of a highway, street, boulevard, parkway, or alley, under the provisions of Section 5(a) of Article XIII of the Charter, the Board of Public Service is directed to notify the Alderman of the ward in which the proposed dedication or grant is sought by mail within seventy-two hours after receipt of the request or petition that the petition or request has been made of such Board. (1994 C., § 20.14.020; Ord. No. 68604, § 3, 3-16-2010.)

20.14.030 Quitclaim deeds—Issuance.

The Mayor and Comptroller are authorized and directed to issue quitclaim deeds to the parties from whom the City acquired title, or to their legal representatives, for all property bought by the City for assessments of benefits in opening streets and alleys. (1994 C., § 20.14.030; Ord. No. 68604, § 3, 3-16-2010.)

20.14.040 Quitclaim deeds—Payments.

Before any deed described in Section 20.14.030 shall issue the amount of the purchase money paid by the City for the property, and also all money expended by the City on account of the property, together with interest at the rate of six percent per year, from the date of purchase and expenditure of money aforesaid, and costs, shall be paid into the City Treasury, and a receipt for the same filed with the Comptroller. Thereupon a deed shall issue for the property so redeemed; provided, however, that in all cases in which the City has purchased any real property, or any interest therein, under a judgment or execution in a street or alley proceeding, the parties from whom the City acquired title, or their legal representatives, shall pay the sum hereinabove provided within the period of one (1) year from the date the property was purchased; provided further, that in all cases in which the City has heretofore purchased any real property, or any interest therein, prior to March 14, 1941, under a judgment or execution in a street or alley proceeding, the parties from whom the City acquired title, or their legal representatives, shall have the right to redeem the property as provided herein by paying the sum provided within the period of one year from March 14, 1941. (1994 C., § 20.14.040; Ord. No. 68604, § 3, 3-16-2010.)

20.14.050 Redemption of property.

In all cases in which the City has purchased any real property or any interest therein, under a judgment or execution in a street or alley proceeding originating prior to October 22, 1876, or there exists an unsatisfied

special assessment of the above character in favor of the City, the property affected may be redeemed upon the following conditions:

A. In cases where the property was purchased by the City under a judgment or execution, there shall be paid into the City Treasury one-half of the amount of purchase money named in the deed and thereupon a deed shall issue for the property so redeemed; provided, however, that this section shall not apply to property of which the City is in possession;

B. In cases where there exists an unsatisfied special assessment of the character described above there shall be paid into the City Treasury one-half of the amount of the original assessment, and thereupon the special assessment shall be marked satisfied on the records in the Comptroller's Office, provided, property heretofore acquired by the City under this section may be redeemed as provided herein, by the parties from whom the City acquired title, or their legal representatives, within one year from March 14, 1941. (1994 C., § 20.14.050; Ord. No. 68604, § 3, 3-16-2010.)

20.14.060 Notice to be given.

The Comptroller is authorized to notify the parties interested herein, in such manner as to him shall seem most expedient. (1994 C., § 20.14.060; Ord. No. 68604, § 3, 3-16-2010.)

20.14.070 Plats to be furnished City Counselor.

Whenever the Board of Aldermen shall provide by ordinance for establishing, opening, widening or altering any boulevard, street, avenue, alley, wharf, marketplace or public square or route for a sewer or water pipe or for changing an existing street into a boulevard or to condemn private property for other or different public uses than those already specified in this section, and it is necessary to take private property for the same, the Director of Streets shall furnish the City Counselor with all necessary plats showing the property affected by the proposed improvement and the metes and bounds and the names of the owners thereof. (1994 C., § 20.14.070; Ord. No. 68604, § 3, 3-16-2010.)

20.14.080 Placing signs in streets or alleys to be vacated.

Whenever a bill vacating a street, alley, public walk, or parkway is introduced in the Board of Aldermen, the Clerk of the Board shall forward a copy thereof to the Director of Streets, who shall cause one or more signs to be posted within or adjacent to the area to be vacated. The signs shall state, in letters not less than two inches high, that a bill is pending in the Board of Aldermen to vacate the street, alley, public walk or parkway, as the case may be. When the signs are posted, the Director of Streets shall notify the Clerk, in writing, and the Clerk shall file the notice with the committee of the Board of Aldermen to which the bill is referred.

When an ordinance authorizing the filing of a condemnation suit to open or widen a public highway is introduced, and contains a provision for the vacation of a portion of a street or alley, this section shall not apply. (1994 C., § 20.14.080; Ord. No. 68604, § 3, 3-16-2010.)

20.14.090 Street or alley vacation processing fee.

A processing fee of five hundred dollars ($500.00) is hereby established to be paid at the time a petition is submitted to vacate any street or alley within the City. (1994 C., § 20.14.090; Ord. No. 68604, § 3, 3-16-2010.)

Chapter 20.16

HOUSE NUMBERING

Sections:

20.16.010 Manner of numbering.
20.16.020 New numbers.
20.16.030 Base line and central base line.
20.16.040 Rectifying lines.
20.16.050 Assignment of numbers.
20.16.060 Location of numbers.
20.16.070 Certificate of proper number.

20.16.010 Manner of numbering.

The numbering of all houses, buildings and other structures fronting on or having entrances on public streets within the City limits in force on January 1, 1916, shall be in conformity with the following rules and regulations:

A. The odd numbers shall be applied to the north and west sides of the streets and even numbers shall be applied to the south and east sides of the streets;

B. On all streets running in a northerly and southerly direction, the numbering shall commence with the numbers one and two at Market Street, and shall increase proceeding north and south at the rate of one hundred numbers for each City block as nearly as possible;

C. On all streets running in a westerly direction, the numbering shall commence at the wharf, and shall increase proceeding westerly at the rate of one hundred

numbers for each City block as nearly as possible. (1994 C., § 20.16.010; Ord. No. 68604, § 4, 3-16-2010.)

20.16.020 New numbers.

The Building Commissioner may number or renumber any block, house, building or other structure or the plural thereof as he in his discretion may deem necessary. He shall establish rectifying lines as may be necessary for the numbering of any new districts, but not so as to conflict with the rectifying lines established.

Within six (6) months of the passage of the ordinance codified in this section, it shall be the responsibility of all owners of structures located within the City to place proper street numbers on their respective premises, as set forth in and described in this section and Section 20.16.060. Buildings numbered on the date of the effectiveness of the ordinance codified in this section are exempt if they have numbers, although the numbers are not of the size specified in this chapter.

Numbers may be placed on porch columns, building walls, on awnings, mailboxes, front yard fence posts, step risers, hand rail end posts, front lawn light posts, door frames, side lights, transoms, storm or screen doors, or other approved locations, in addition to the locations mentioned in this chapter.

Numbers may be metal, wood, plastic, decals, carved into architectural features, or of any approved material.

Enforcement of this chapter is delegated to the Division of Building and Inspection when it issues occupancy permits or building orders under the Property Maintenance Code. All penalties and appeals provisions of the Property Maintenance Code then apply.

House numbers being vital to the public safety, the St. Louis Fire Department is hereby empowered to enforce this chapter as a portion of the Fire Prevention Code. All appeals and penalties of that code then apply. In addition, the St. Louis Police Department is empowered to cite violators under the penalty provisions of this section.

Penalty Clause. Any person who shall violate provisions of this chapter shall, upon conviction thereof, be subject to a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed ninety (90) days, or both, at the discretion of the court. (1994 C., § 20.16.020; Ord. No. 68604, § 4, 3-16-2010.)

20.16.030 Base line and central base line.

A base line and a central base line are established. The base line shall run north and south along the entire Mississippi River front to the intersections by the northern and southern City limits lines, and the central base line at Market Street, thence running westerly along Market Street to the intersection of Laclede Avenue to the intersection of the eastern line of Forest Park, thence westerly through Forest Park to the intersection of the west line of Skinker Road at Wydown Boulevard, thence westerly along Wydown Boulevard to the intersection of the City limits line. (1994 C., § 20.16.030; Ord. No. 68604, § 4, 3-16-2010.)

20.16.040 Rectifying lines.

Rectifying lines are established as follows: Jefferson Avenue shall be twenty-six hundred west; Grand Avenue shall be thirty-six hundred west; King's Highway, north from the intersection of Lindell Avenue, shall be fifty hundred west, and King's Highway, south from the intersection of Euclid Avenue to its intersection with Gravois Avenue, shall be forty-nine hundred west; Euclid Avenue from its intersection with King's Highway to its intersection with Lindell Avenue shall be forty-nine hundred west; Park Avenue, from the east line westerly to the center line of Missouri Avenue, shall be fourteen hundred south; Park Avenue, from the center line of Missouri Avenue westwardly to Tower Grove Avenue, shall be fifteen hundred south; Arsenal Street, from the base line to the intersection of the western City limits, shall be thirty-one hundred south; Eichelberger Street, from the base line to the intersection of the western City limits, shall be fifty-four hundred south; Cass Avenue, from the base line to the intersection of Easton Avenue, shall be fifteen hundred north; Easton Avenue, from the intersection of Cass Avenue to the western City limits, shall be fifteen hundred north; Salisbury Street, from the base line to the intersection of Natural Bridge Avenue, shall be thirty-seven hundred north; Natural Bridge Avenue, from the intersection of Salisbury Street, to the western City limits line, shall be thirty-seven hundred north; Calvary Avenue, from the base line westerly to the intersection of Florissant Avenue, shall be seventy-five hundred north, except at Florissant Avenue, which shall be seventy-four hundred north. In the district bounded by Grand Avenue, Laclede Avenue (central base line), Florissant Avenue, and the western City limits line, the streets shall be treated and numbered as north streets

from central base line. Florissant Avenue shall retain its present system of numbering. (1994 C., § 20.16.040; Ord. No. 68604, § 4, 3-16-2010.)

20.16.050 Assignment of numbers.

There shall be one number allowed for every twenty feet of vacant ground or building, house or structure. There shall be a full number assigned for any building, house or structure twenty feet in width. There shall also be assigned a half number for any building, house or structure or through passage way leading from any street to the rear of premises less than twenty feet in width. There shall also be assigned a full number, with the letter "A," for any entrance leading directly from any street or highway to any second floor apartment, regardless of the purpose for which the apartment is to be used. All numbering shall be done as directed by the Street Commissioner. All numbers shall be assigned to meet the door openings as nearly as possible. The Street Commissioner shall, where a block is more than one thousand feet long, cause duplicate numbers to be issued, except that the full number will have the letters "N," "S," or "W," as follows: On all east and west streets where the house, building, or structure shall be ten hundred twenty feet from the starting number, the house, building or structure shall take the starting number of the block with the letter "W" for the first floor entrance; second floor entrance to have a full number with the letters "W-A." This shall continue until two thousand feet have been reached, or until a rectifying line has been reached or until a change of hundred has been reached. The above shall apply, also, to streets numbered south from the central base line, except that the letter "S" shall be used for the first floor and "S-A" for the second floor. The same mode of numbering shall be applied to streets numbered from the central base line north, except that the letter "N" shall be used for the first floor and the letters "N-A" shall be used for the second floor entrances. (1994 C., § 20.16.050; Ord. No. 68604, § 4, 3-16-2010.)

20.16.060 Location of numbers.

The responsibility for the proper numbering of each house, building or other structure on the street front and, if there be an alley entrance, also at the alley entrance to the premises, on which the house, building or structure is located shall rest upon its owner, trustee, lessee, agent, or occupant, who shall cause the same to be numbered. The number shall be placed either on the front transom bar, front transom glass, or front show window over or on either side of the entrance, the address numbers shall be Arabic numerals and shall be of paint or metal and at least three inches in height with a minimum stroke width of 0.5 inches, the color of the numbers to be in contrast to the immediate background, and shall be so placed as to be in full view from the opposite side of the street. No house number shall be covered with any sign, drapery or other obstruction tending to conceal the number. All old numbers must be removed from any house, building or other structure when a new number has been assigned or when so directed by the Building Commissioner. The house number shall be placed conspicuously at the alley entrance, the same to be of paint or metal figures not less than three inches high. The Building Commissioner may require the numbering and renumbering of any house, building or other structure and the alley entrance thereof, in accordance with his directions. (1994 C., § 20.16.060; Ord. No. 68604, § 4, 3-16-2010.)

20.16.070 Certificate of proper number.

The Building Commissioner shall furnish a certificate of the proper house number to all persons taking out building permits, and to all persons desiring data or information for the proper numbering of any house, building or other structure. (1994 C., § 20.16.070; Ord. No. 68604, § 4, 3-16-2010.)

Chapter 20.18

CONSTRUCTION, REPAIR AND MAINTENANCE OF STREETS AND ALLEYS

Sections:

Part I. Public Streets and Alleys

20.18.010	**Cleaning.**
20.18.030	**Vehicles belonging to City employees not to be used in City work.**
20.18.040	**City vehicles.**
20.18.050	**Repair defined.**
20.18.060	**Payment for repairs.**
20.18.070	**Materials for repair.**
20.18.080	**Private construction—Permit required.**
20.18.090	**Private construction—Supervision of work.**
20.18.100	**Private construction—Cleaning and repair by City after construction.**

20.18.110 Private construction—Conditions upon which permit granted.

20.18.120 Private construction—Deposit.

Part II. Private Streets, Curbs, Sidewalks and Alleys

20.18.130 Private streets, curbs, sidewalks and alleys—Authorized.

20.18.140 Construction of private streets, curbs, sidewalks and alleys—Permit required.

20.18.150 Bond required.

20.18.160 Special tax bills.

Part III. Cash Match Alley Improvement Program

20.18.170 Established—Exceptions.

20.18.180 Definitions.

20.18.190 Procedure to determine participation in cash match program.

PART I. PUBLIC STREETS AND ALLEYS

20.18.010 Cleaning.

The work of sweeping and cleaning the roadways, including the gutters, of all paved public streets in the City shall be done under the supervision of the Street Commissioner. (1994 C., § 20.18.010; Ord. No. 68604, § 5, 3-16-2010.)

20.18.030 Vehicles belonging to City employees not to be used in City work.

No teams, wagons, carts, trucks, automobiles or other vehicles belonging in whole or in part to the Street Commissioner or to any officer or employee in any of the departments shall be used, directly or indirectly, for any work done or performed for or by the City. (1994 C., § 20.18.030; Ord. No. 68604, § 5, 3-16-2010.)

20.18.040 City vehicles.

The Street Commissioner and superintendents in the Street Division shall be furnished conveyances and the cost of maintenance shall be paid out of the City Treasury. (1994 C., § 20.18.040; Ord. No. 68604, § 5, 3-16-2010.)

20.18.050 Repair defined.

"Repair" as used in this chapter means to restore any hole, depression or excavation in any street or highway to a good, safe or sound condition after deterioration, injury, damage, dilapidation or partial destruction. (1994 C., § 20.18.050; Ord. No. 68604, § 5, 3-16-2010.)

20.18.060 Payment for repairs.

Unless otherwise provided for, whenever in the opinion of the Director of Streets the pavement of the roadway of any improved public highway is in need of repair, it shall be the duty of the Street Commissioner to cause the repairs to be made and the cost thereof shall be charged to and paid out of appropriations for current expenses of the Street Division. When the repairs have become necessary as a result of an excavation in or under the pavement of the highway or of the passage in the highway of vehicles not conforming to the City ordinances regulating weight, equipment and character of vehicles or of any other act not consistent with the lawful use of the highway, the cost of the repairs shall be charged against the person responsible for the damage and collected as other indebtedness to the City is collected. (1994 C., § 20.18.060; Ord. No. 68604, § 5, 3-16-2010.)

20.18.070 Materials for repair.

Whenever the Board of Public Service shall consider it advisable and for the best interest of the City to utilize materials for the repair or maintenance or in the resurfacing of the roadway of an improved public highway different in character from the materials with which the roadway has previously been constructed or reconstructed, it may, by a vote of the majority of all of its members, authorize the use of other specified materials in the repair of the roadway and upon such action by the Board it shall authorize and direct the Director of Streets to cause the roadway to be repaired and maintained as authorized by the Board; provided, however, that the Street Commissioner, with the approval of the Director of Streets, in making temporary and emergency repairs of the roadways of public highways, may use suitable materials, although different in character, from the materials with which the roadway has previously been constructed or reconstructed. (1994 C., § 20.18.070; Ord. No. 68604, § 5, 3-16-2010.)

20.18.080 Private construction—Permit required.

The Board of Public Service is authorized to grant permission to the owners of property fronting upon or adjoining any street, avenue, public highway or alley to grade, construct or reconstruct the curbing, guttering, roadway paving or sidewalk paving of the street, ave-

nue, public highway or alley at the property owner's own cost and expense. (1994 C., § 20.18.080; Ord. No. 68604, § 5, 3-16-2010.)

20.18.090 Private construction—Supervision of work.

All work authorized by Section 20.18.080 shall be done under the supervision of and according to plans and specifications approved by the Board of Public Service. (1994 C., § 20.18.090; Ord. No. 68604, § 5, 3-16-2010.)

20.18.100 Private construction—Cleaning and repair by City after construction.

The roadways of streets, avenues and public highways constructed or reconstructed under the provisions of Section 20.18.080 shall be cleaned and repaired by the City as other streets of similar material and construction are cleaned and repaired. (1994 C., § 20.18.100; Ord. No. 68604, § 5, 3-16-2010.)

20.18.110 Private construction—Conditions upon which permit granted.

All permits granted under the provisions of Section 20.18.080 shall be given upon the express condition that they shall not be construed to impair in any way the right of the City to reconstruct the streets, avenues, public highways or alleys at any time, nor to entitle the owners to any claim for damages against the City for reconstructing the same. (1994 C., § 20.18.110; Ord. No. 68604, § 5, 3-16-2010.)

20.18.120 Private construction—Deposit.

Before permission is issued under the provisions of Section 20.18.080, the person making application therefor shall pay into the City Treasury a sum of money to be fixed by the Board of Public Service, but not less in any case than two hundred fifty dollars. The moneys shall be a special fund out of which shall be paid the cost of all engineering and inspection which shall become necessary on account of any work done under permission, as well as all costs for refilling or any other expenses to which the City may be put on account of the work or any violations of the conditions or regulations under which the same is done, and if, after deducting all payments there be any remainder, it shall be returned to the person by whom the fund was deposited. (1994 C., § 20.18.120; Ord. No. 68604, § 5, 3-16-2010.)

PART II. PRIVATE STREETS, CURBS, SIDEWALKS AND ALLEYS

20.18.130 Private streets, curbs, sidewalks and alleys—Authorized.

The construction, reconstruction and repair of streets, curbs, sidewalks and alleys intended for the private use of designated property owners is hereby authorized under the conditions and requirements set forth in this part. For purposes of this part any street, curb, sidewalk or alley which has not been dedicated for public use through the Board of Public Service shall be intended for private use. (1994 C., § 20.18.130; Ord. No. 68604, § 5, 3-16-2010.)

20.18.140 Construction of private streets, curbs, sidewalks and alleys—Permit required.

A. No property owner, contractor or any other person shall construct, reconstruct or repair, or cause to be constructed, reconstructed or repaired, any street, curb, sidewalk or alley which is private or intended to be private without having previously obtained written permission to do so from the Director of Streets.

B. The work shall be done in accordance with specifications approved by the Board of Public Service, and under the supervision and to the satisfaction of the Director of Streets or his duly authorized agent.

C. In case of failure on the part of the permittee to proceed in conformity with the specifications and directions, the Board of Public Service shall cause the street, curb, sidewalk or alley to be removed or reconstructed. (1994 C., § 20.18.140; Ord. No. 68604, § 5, 3-16-2010.)

20.18.150 Bond required.

Before any permit is issued under the provisions of Section 20.18.140, the person submitting the application shall post a bond with the Comptroller in an amount set by the Board of Public Service to insure and guaranty, to the extent of the amount specified by the Board of Public Service in its estimate of the cost thereof, the construction and completion of the improvement for which the permit is sought. The Comptroller shall release the surety from all or any part of its obligation under the bond only upon receipt of written notification from the Board of Public Service that said improvements have been completed in a satisfactory manner and approved by the Director of Streets. (1994 C., § 20.18.150; Ord. No. 68604, § 5, 3-16-2010.)

20.18.160 Special tax bills.

In the event that the Board of Public Service is required to remove, reconstruct or repair any private street, curb, sidewalk or alley under the provisions of Section 20.18.140 subsequent to the release of the surety under Section 20.18.150, the total cost of the removal, reconstruction or repair shall be determined by the Board of Public Service and certified to the Street Commissioner who shall prepare and issue a bill for payment of a pro rata share of said cost to the owners or their representatives of each lot of ground adjacent to said improvement. In the event that these bills are not paid within 60 days of issue, the Comptroller shall prepare and issue a special tax bill to any owner who has failed to submit the requested payment to be collected as permitted by law. (1994 C., § 20.18.160; Ord. No. 68604, § 5, 3-16-2010.)

PART III. CASH MATCH ALLEY IMPROVEMENT PROGRAM

20.18.170 Established—Exceptions.

There is hereby established a cash match concrete alley improvement program for the purpose of providing for an incentive to property owners to participate with the City in the cost of the improvement of alleys. The provisions of this part shall not be applicable to alleys which abut any lot in a J, K or L zoning district. (1994 C., § 20.18.170; Ord. No. 68604, § 5, 3-16-2010.)

20.18.180 Definitions.

For the purpose of this part, the following definitions shall apply:

"Alley" means improved alleys that are within public rights-of-way which have been previously improved, unimproved alleys within public rights-of-way or private alleys upon dedication to the City.

"Cost" means all costs incurred in connection with an alley improvement under this part, including, but not limited to, costs incurred for the preparation of preliminary reports, the preparation of preliminary reports, the preparation of plans and specifications, fees and expenses of consultants, the cost of materials, labor and other lawful expenses incurred in planning and doing any improvement, including the acquisition of right-of-way and easement, reasonable construction contingencies, and work performed.

"Improvement" means removal of pavement, new pavement, reconstruction of existing pavement, necessary drainage measures, grading, fence removal and replacement and utility adjustment.

"Nonowner funds" means matching funds appropriated from the City-wide account of the capital appropriation for the City of St. Louis and the aldermanic ward improvement account of the capital appropriation for the ward in which the alley to be improved is located.

"Owner" means every person designated as grantee or party of the second part on a deed recorded with the Recorder of Deeds. (1994 C., § 20.18.180; Ord. No. 68604, § 5, 3-16-2010.)

20.18.190 Procedure to determine participation in cash match program.

A. In order to become eligible for funding for an alley improvement under this program, a petition supporting the improvement and any cost associated with the improvement must be presented to the Board of Public Service signed by sixty-seven percent (67%) of the owners of property that abut the alley to be improved. The petition forms will be available in the Board of Public Service Office and shall contain a statement disclosing the estimated cost per lineal foot of the alley improvement. The petition must contain the name, address and signature of the required number of property owners; the City block number in which the alley is located; the names of all streets bounding the designated City block; and the approximate width and length of the alley. A separate petition is necessary for every City block.

B. Upon receipt of the petition, the Board of Public Service shall determine within fourteen calendar days whether there are nonowner funds available for the project. If the Board of Public Service determines that there are insufficient nonowner funds available for the alley improvement the petition representative shall be notified, and the petition shall become null and void ninety days after such notification. If the Board of Public Service determines that there are nonowner funds available for the improvement of the alley the petition representative and the Street Department shall be notified.

C. Except for good cause, the Board of Public Service shall within thirty calendar days of receipt of the petition make a determination as to the probable cost of the alley improvement. Said determination shall call for one-third of the probable cost to be paid by the property owners, one-third to be paid from the Alderman's ward capital improvement account and one-third to be paid from the City-wide account of the

capital appropriation. The cost determination shall be forwarded to the Alderman and to the petition representative within seven calendar days of said determination. The Board of Public Service shall also advise the Alderman and the petition representative of the approximate commencement date and completion date for the project.

D. Once the petition representative is notified of the cost determination, said representative shall notify all of the owners whose property abuts the alley to be improved of the total cost of the project to the owners. The cost to each owner shall be determined by dividing one-third of the total cost of the project ratably by the linear footage of each parcel abutting the alley, except as herein provided. If more than one side of a parcel abuts the alley to be improved the cost to the property owner shall not be more than the cost attributable to the narrowest side of the parcel abutting the alley. The balance of the total cost shall be paid from funds set aside for this project by the Alderman from the ward allocation.

E. After the notification required in Subsection D of this section the owners shall have forty-five calendar days to submit one hundred percent (100%) of the owner's share of the probable total cost to the Comptroller who shall establish a special account for each improvement hereunder. The owner's funds shall be deposited into the special account which shall be interest bearing.

F. Once the owners' funds are deposited with the Comptroller, the Street Department shall commence the project. Except for good cause, the improvement shall be completed within one year of the owners' funds being deposited with the Comptroller. If for any reason the improvement cannot be commenced within six months of the deposit, the petition representative shall be notified. Within thirty days of such notification, a majority of the owners may cancel the improvement by notifying the President of the Board of Public Service in writing. If the improvement is canceled because of this provision the owners shall be refunded their money, in full, with interest within thirty days of notice of cancellation. Upon such occurrence, there shall be no obligation on any person or party to commence or complete the improvement.

G. Upon completion of construction, the total actual cost for the project will be determined. The actual cost for each owner shall be determined as set forth herein. Any additional cost shall be paid from the aldermanic ward allocation account. If there are residual funds in the owner's account after the actual cost has been determined each owner will receive a refund determined by the formula used to calculate each owner's cost. (1994 C., § 20.18.190; Ord. No. 68604, § 5, 3-16-2010.)

Chapter 20.20

TEMPORARY CLOSING OF STREETS

Sections:

20.20.010	**Authority of Director of Streets.**
20.20.020	**Use prohibited.**
20.20.030	**Duty of police.**
20.20.040	**Placarding.**
20.20.050	**Removal of placards.**

20.20.010 Authority of Director of Streets.

The Director of Streets is authorized, with the approval of the Mayor, to close any street, alley, public place or highway and withdraw the same from public use temporarily and during the period public work thereon shall make the action necessary. (1994 C., § 20.20.010; Ord. No. 68604, § 6, 3-16-2010.)

20.20.020 Use prohibited.

Any person using or attempting to use any street, alley or public place or highway withdrawn from public use under the provisions of this chapter or driving or attempting to drive any animal or vehicle thereon, shall be deemed guilty of a misdemeanor. (1994 C., § 20.20.020; Ord. No. 68604, § 6, 3-16-2010.)

20.20.030 Duty of police.

It shall be the duty of the police within their respective districts to watch for and arrest persons violating the provisions of Section 20.20.020. (1994 C., § 20.20.030; Ord. No. 68604, § 6, 3-16-2010.)

20.20.040 Placarding.

Whenever any street, alley, public place or highway is temporarily closed, and withdrawn from public use, as provided in Section 20.20.010, the Director of Streets shall cause to be placed at each end of the portion withdrawn from public use a placard, printed in large type, in the following words: "Street closed. This street is temporarily withdrawn from public use by authority of the Revised Code of St. Louis." (1994 C., § 20.20.040; Ord. No. 68604, § 6, 3-16-2010.)

20.20.050 Removal of placards.

Any person who shall remove a placard from any public street, or tear, deface or mutilate a placard, shall be guilty of a misdemeanor. (1994 C., § 20.20.050; Ord. No. 68604, § 6, 3-16-2010.)

Chapter 20.22

AREAWAY, VAULTS IN STREETS AND SIDEWALKS

Sections:

20.22.010 **Permit required—For construction or maintenance in streets.**

20.22.020 **Permit required—Excavation or construction in sidewalks.**

20.22.030 **Vaults to be covered.**

20.22.040 **Covers.**

20.22.010 Permit required—For construction or maintenance in streets.

No permit for the construction or maintenance of an areaway or vault in any public street, highway or alley may be issued except by the Board of Public Service. The Board may issue a permit only after the owner of the property adjacent to the portion of the public street, highway or alley in which the areaway or vault is proposed to be constructed or maintained has filed with the Board an application for a permit accompanied by copies of complete detailed plans of the proposed areaway or vault, sufficient in number to meet the needs of the Board. Permits shall be subject to the following conditions:

A. The outer face of the walls of the areaways or vaults shall not extend beyond the curb line of the public street or highway;

B. The outer face of the walls of such areaways or vaults in any public alley shall not be more than five feet from the property line of the adjacent property;

C. No areaway or vault shall extend into the entrance of any public alley between the property line and curb line of any public street or highway;

D. The areaway or vault shall be constructed and maintained in accordance with plans filed with and approved by the Board of Public Service;

E. No steps shall be built or placed in the areaway or vault;

F. The City reserves the right to enter the areaway or vault and take the space deemed necessary by the Board of Public Service for any public purpose or use;

G. The permit is subject to revocation at any time by the Board of Public Service;

H. Other reasonable conditions as the Board of Public Service may impose to insure the public safety and protect the public interest. (1994 C., § 20.22.010; Ord. No. 68604, § 7, 3-16-2010.)

20.22.020 Permit required—Excavation or construction in sidewalks.

Except as provided in Sections 20.30.010—20.30.030, no person, property owner, agent or builder shall excavate or construct any vault or areaway in the sidewalk area of any public highway and no person, property owner, agent or builder shall cause any such excavation or construction to be made without having previously obtained from the Board of Public Service a permit for excavation or construction. Any person, property owner, agent or builder who violates the foregoing provision or who, having violated such provision and having been notified by the Director of Streets of the violation, fails to remove the areaway or vault and restore the public highway or areaway or vault to conform to the plans approved by the Board of Public Service, shall be deemed guilty of a misdemeanor and every day the vault or areaway is allowed to remain or is not changed or altered to conform to the approved plans shall be deemed a separate offense. (1994 C., § 20.22.020; Ord. No. 68604, § 7, 3-16-2010.)

20.22.030 Vaults to be covered.

Whoever shall in this City, dig or cause to be dug, in any highway, thoroughfare or sidewalk, a vault, and shall not arch or cover the same over, and secure the grating or covering of the opening thereof, in such manner as to prevent persons, animals and vehicles from falling therein, shall be guilty of a misdemeanor. (1994 C., § 20.22.030; Ord. No. 68604, § 7, 3-16-2010.)

20.22.040 Covers.

Any opening in a paved sidewalk leading into an area or vault beneath, or into a cellar, shall be fitted with a wood or iron cover or grating, set in flagging even with the surface of the sidewalk. The covering or grating shall have no lock, hinge or any fastening projecting above the sidewalk, and shall be secured in a manner to prevent accident to anyone passing over it. Any person who shall fail to comply with the provisions of this section, or who shall leave an opening in a sidewalk uncovered, shall be guilty of a misdemeanor. (1994 C., § 20.22.040; Ord. No. 68604, § 7, 3-16-2010.)

Chapter 20.24

STRUCTURES OVERHANGING OR CROSSING STREETS

Sections:

20.24.010	**Permit required—Bridge or support.**
20.24.020	**Permit required—Fixed canopy.**
20.24.030	**Permit required—Fixed awning.**
20.24.040	**Permit required—Existing structures.**
20.24.050	**Work to be done under supervision of Directors of Streets and Public Safety.**
20.24.060	**Fee for permit.**
20.24.070	**Inspections.**
20.24.080	**Right to require removal.**

20.24.010 Permit required—Bridge or support.

No person, firm or corporation shall erect nor cause to be erected, nor maintain nor cause to be maintained, any bridge, overhead passageway, arch, support for pipes, support for hoist nor any similar structure over or across any public highway or other public place without a permit from the Board of Public Service and subject to reasonable conditions and regulations as the Board may specify. (1994 C., § 20.24.010; Ord. No. 68604, § 8, 3-16-2010.)

20.24.020 Permit required—Fixed canopy.

No person, firm or corporation shall erect nor cause to be erected nor maintain nor cause to be maintained any fixed canopy, as hereinafter defined, nor any other similar structure any supports of which rest in or upon any portion of a public highway without a permit from the Board of Public Service and subject to reasonable regulations and conditions as the Board may specify. (1994 C., § 20.24.020; Ord. No. 68604, § 8, 3-16-2010.)

20.24.030 Permit required—Fixed awning.

No person, firm or corporation shall erect nor cause to be erected, nor maintain, nor cause to be maintained any fixed awning, as hereinafter defined, which projects more than six feet three inches over the public highway, without a permit from the Board of Public Service and subject to reasonable regulations and conditions as the Board may specify.

A fixed awning projecting not more than six feet three inches over the public highway and not less than two feet from the curb line shall be not less than eight feet above the public sidewalk and not less than fourteen feet six inches over the public roadway.

"Fixed awning" means a rigid roof-like structure of noncombustible materials, supported entirely from the walls or frame of a structure which does not encroach on the public highway. (1994 C., § 20.24.030; Ord. No. 68604, § 8, 3-16-2010.)

20.24.040 Permit required—Existing structures.

Any person, firm or corporation now maintaining any bridge, overhead passageway, arch, support for pipes, support for hoist or any similar structure or fixed canopy or fixed awning over, on or across any part of a public highway or other public place without a permit from the Board of Public Service so to do shall, before November 10, 1956, obtain from the Board a permit to continue to maintain such a structure, or, failing to obtain a permit within the time limit, shall forthwith remove the structure from the public highway. (1994 C., § 20.24.040; Ord. No. 68604, § 8, 3-16-2010.)

20.24.050 Work to be done under supervision of Directors of Streets and Public Safety.

The work of construction of any structure in this chapter, in its relation to and effect upon the public highway, shall be done under the supervision and to the satisfaction of the Director of Streets and as to structural details under the supervision and to the satisfaction of the Director of Public Safety. (1994 C., § 20.24.050; Ord. No. 68604, § 8, 3-16-2010.)

20.24.060 Fee for permit.

For the privilege of erecting and maintaining in the public highway any such structure as mentioned in this chapter, the fee to be paid for the permit issued by the Board of Public Service shall be one hundred dollars ($100.00) or, if an engineering review of the plans and structure is required, then the fee shall be based upon actual hours spent rendering the service. The fee shall accompany the application to the Board for such a permit. Such fee shall be for the use of the Department of Streets as reimbursement for investigations, examination of plans and supervision of construction of such structures. (1994 C., § 20.24.060; Ord. No. 68604, § 8, 3-16-2010.)

20.24.070 Inspections.

The Director of Streets shall cause a semi-annual inspection to be made of all fixed canopies and other structures, the supports of which rest in or upon any

part of the public highways. The Director of Streets shall cause such additional inspection to be made as he deems necessary to public safety of all such structures to which the provisions of this chapter shall apply, but no fees shall be charged for such additional inspections. (1994 C., § 20.24.070; Ord. No. 68604, § 8, 3-16-2010.)

20.24.080 Right to require removal.

No permit shall be granted for the erection of any structure under authority of this chapter except on the condition that the City reserves the right on three months' notice to require the structure to be removed from the public highway at the expense of the owner. (1994 C., § 20.24.080; Ord. No. 68604, § 8, 3-16-2010.)

Chapter 20.26

CONSTRUCTION, REPAIR AND MAINTENANCE OF SIDEWALKS

Sections:

20.26.010 Repairs—Notice to owner.

20.26.020 Repairs—Failure of owner to show cause.

20.26.030 Repairs—Costs—Constitute lien.

20.26.040 Repairs—Costs—Computed and assessed as special tax.

20.26.050 Private construction.

20.26.060 Construction or reconstruction—Notice to owner.

20.26.070 Construction or reconstruction—Failure of owner to show cause.

20.26.080 Width requirements.

20.26.090 Cross slope.

20.26.100 Crosswalks.

20.26.110 Revolving fund for sidewalk repair—Created.

20.26.120 Revolving fund for sidewalk repair—Payment of special tax bill.

20.26.130 Revolving fund for sidewalk repair—Warrant by Comptroller.

20.26.140 Bond or deposit required for issuance of building permit.

20.26.150 Building demolition.

20.26.160 Bonding persons doing concrete work for hire.

20.26.170 Penalty for violation of Section 20.26.160.

20.26.175 Bonding of persons doing asphalt paving work for hire in the public right-of-way.

20.26.180 Hazardous sidewalks—Notice to repair.

20.26.190 Hazardous sidewalks—Appeal—Time extension.

20.26.200 Hazardous sidewalks—Penalty for violation.

20.26.210 Tax bill for sidewalk repair—Issued when.

20.26.220 Curbs.

20.26.230 Contracts for repairs.

20.26.240 Sidewalks—Authority of Street Department to repair.

20.26.250 Notice to property owners.

20.26.260 Notice of costs to property owners.

20.26.270 Special tax lien.

20.26.280 Nonentitlement to credit or rebate.

20.26.290 Residential walks—Special revolving fund.

20.26.010 Repairs—Notice to owner.

Whenever any sidewalk or driveway or the covering over any areaway or vault in the sidewalk in any public highway shall need repair, the Director of Streets shall notify the owner of the property adjoining the sidewalk, or his agent, through the mail, to have the same repaired to the satisfaction of the Director of Streets within thirty days from the date of the notice, or to appear before the Board of Public Service on the day and hour specified in the notice. The time shall be the time of the first meeting of the Board after the expiration of the thirty-day period. The owner shall show cause why the Board should not have the sidewalk or driveway or the covering over any areaway or vault in the sidewalk repaired, and the cost thereof assessed as a tax against the property abutting the sidewalk area in which the work is done. (1994 C., § 20.26.010; Ord. No. 68604, § 9, 3-16-2010.)

20.26.020 Repairs—Failure of owner to show cause.

At the meeting of the Board of Public Service at which a hearing is held for the repair of a sidewalk or driveway or the covering over an areaway or vault, or within three days following the meeting, the Board shall make its decision regarding the repair. If, in the

opinion of the Board, the owner or agent has failed to show cause why the repair should not be made, the Board shall authorize and instruct the Director of Streets to cause the repair to be done under his direction and to his satisfaction, and an accurate account kept of the cost of all labor, including supervision, and material entering into the work. (1994 C., § 20.26.020; Ord. No. 68604, § 9, 3-16-2010.)

20.26.030 Repairs—Costs—Constitute lien.

The expense incurred by the City for labor, including supervision, and materials employed in the repair of any sidewalk or driveway or the covering over any areaway or vault in the sidewalk in any public highway under authority of the Board of Public Service and Sections 20.26.010 and 20.26.020, shall be charged as a lien against the property adjoining the sidewalk area in which the work is done. (1994 C., § 20.26.030; Ord. No. 68604, § 9, 3-16-2010.)

20.26.040 Repairs—Costs—Computed and assessed as special tax.

Upon completion of the repair of any sidewalk or driveway or the covering over any areaway or vault in the sidewalk in any public highway by the Director of Streets, as authorized by the Board of Public Service under authority of Sections 20.26.010—20.26.030, the Director shall cause the total cost of the repair to be determined and certify the same to the Board of Public Service.

Upon the approval of the report by the Board, the report, with the approval of the Board endorsed thereon, shall be transmitted to the person designated by the Board to prepare special tax bills, who shall assess the same as a special tax against each lot of ground chargeable therewith, in the names of the owners thereof, respectively, and shall make out and certify to the Comptroller bills of the cost and assessments accordingly as required by law. (1994 C., § 20.26.040; Ord. No. 68604, § 9, 3-16-2010.)

20.26.050 Private construction.

No property owner, contractor or any other person shall construct, reconstruct or repair, or cause to be constructed, reconstructed or repaired, any sidewalk or driveway, or the covering over any areaway or vault in the sidewalk in any public highway in the City without having previously obtained written permission so to do from the Director of Streets.

The work shall be done in accordance with specifications approved by the Board of Public Service, and under the supervision and to the satisfaction of the Director of Streets or his duly authorized agent.

In case of failure on the part of the permittee to proceed in conformity with the specifications and directions, the Board of Public Service shall cause the work to be removed or reconstructed in the manner provided for in Sections 20.26.010—20.26.040.

Whenever the Board of Aldermen shall direct, by ordinance, the improvement of a public street or avenue, the Board of Public Service shall, upon the application of the owner of any property fronting or bordering the improvement, grant permission to the owner to construct the sidewalk in front of the property. If the permit is for the construction of a sidewalk in front of a corner lot, the permit will be given on condition that the sidewalk be laid to the curb lines of the intersecting street. Without such permission no sidewalk shall be constructed. (1994 C., § 20.26.050; Ord. No. 68604, § 9, 3-16-2010.)

20.26.060 Construction or reconstruction—Notice to owner.

Whenever a sidewalk adjoining any property should be constructed or completely reconstructed, in the opinion of the Director of Streets, the Director shall notify the owner of the property adjoining the area on which the sidewalk should be constructed or completely reconstructed, or the agents of the owners, through the mail, to have the sidewalk constructed or completely reconstructed, in accordance with the specifications approved by the Board of Public Service, as provided in Section 20.26.050, within thirty days from the date of the notice, or to appear before the Board on the day and hour specified in the notice. The time shall be the first meeting of the Board after the expiration of the thirty-day period. The owner shall show cause why the Board should not cause the sidewalk to be constructed or completely reconstructed, and the cost thereof assessed as a special tax against the property adjoining the area on which the sidewalk is to be constructed or reconstructed. (1994 C., § 20.26.060; Ord. No. 68604, § 9, 3-16-2010.)

20.26.070 Construction or reconstruction—Failure of owner to show cause.

At the meeting of the Board of Public Service at which the hearing is held for the construction or reconstruction of a sidewalk, or within three days following

such meeting, the Board shall make its decision regarding the construction or reconstruction. If, in the opinion of the Board, the owner or agent has failed to show cause why the sidewalk should not be constructed or reconstructed, the Board shall cause the sidewalk to be constructed or reconstructed, as the case may be, and cause special tax bills to be issued therefor, all as directed by the Charter for doing public work to be paid for by a special assessment. (1994 C., § 20.26.070; Ord. No. 68604, § 9, 3-16-2010.)

20.26.080 Width requirements.

Except in those cases where the width of sidewalks shall be fixed by order duly entered by the Board of Public Service, as hereinafter provided, the widths of all sidewalks in the City shall be as follows:

In all streets of thirty and under thirty-eight and one-half feet in width the sidewalks shall be five and one-half feet wide; those of thirty-eight and one-half and under forty feet in width shall have sidewalks six and one-half feet wide; those of forty and under fifty feet in width shall have sidewalks eight feet wide; those of fifty and under sixty feet in width shall have sidewalks ten feet wide; those of sixty and under seventy-five feet in width shall have sidewalks twelve feet wide; those of seventy-five and under eighty feet in width shall have sidewalks fourteen feet wide; those of eighty and under one hundred feet in width shall have sidewalks fifteen feet wide; those of one hundred feet and upwards shall have sidewalks twenty feet wide; provided, however, that the Board of Public Service may at any time, by order duly entered, fix the width of any sidewalk or sidewalks in the City at variance with the widths above set out, whenever it may seem best to do so in the discretion of the Board. (1994 C., § 20.26.080; Ord. No. 68604, § 9, 3-16-2010.)

20.26.090 Cross slope.

No sidewalk shall be constructed, the cross grade of which or rise from the curbstone, shall be greater than one-quarter inch vertical rise to one foot horizontal distance except with the approval of the Board of Public Service. In each instance the cross grade shall slope toward the street and the curb line shall be maintained at its correct elevation above the City directrix which shall be determined from the construction of the particular street in question. (1994 C., § 20.26.090; Ord. No. 68604, § 9, 3-16-2010.)

20.26.100 Crosswalks.

The Board of Public Service shall grant any person permission to construct a crosswalk at his own expense at any point upon any street, avenue or highway when the crosswalk will not obstruct the public carriage way or inconvenience the public. The crosswalk shall be constructed of the kind of material and in the manner directed by the Board of Public Service. (1994 C., § 20.26.100; Ord. No. 68604, § 9, 3-16-2010.)

20.26.110 Revolving fund for sidewalk repair—Created.

There is created a revolving fund to expedite the repair of sidewalks and driveways and of the covering over of areaways and vaults in the sidewalks, in order to provide funds to carry out the provisions of Section 20.26.060, and the amount hereinafter appropriated, together with any money hereafter appropriated to the fund, shall be used to pay the cost of the repairs. (1994 C., § 20.26.110; Ord. No. 68604, § 9, 3-16-2010.)

20.26.120 Revolving fund for sidewalk repair—Payment of special tax bill.

Upon the payment of any special tax bill issued against private property for the cost of repairs made pursuant to Section 20.26.060, the cost of which repairs was paid out of the fund, the proceeds of the special tax bill shall be deposited to the credit of the fund and may be again used for the purposes for which the fund is created and in the same manner as money hereinafter appropriated. (1994 C., § 20.26.120; Ord. No. 68604, § 9, 3-16-2010.)

20.26.130 Revolving fund for sidewalk repair—Warrant by Comptroller.

The Comptroller is authorized and directed to draw his warrant upon the fund upon the written request of the Director of Streets. (1994 C., § 20.26.130; Ord. No. 68604, § 9, 3-16-2010.)

20.26.140 Bond or deposit required for issuance of building permit.

No building permit or occupancy permit shall be issued by the Building Commissioner to erect, alter, add to, or use a structure for any purpose whatever prior to the placing on deposit with the Director of Streets a sum equal to, or a corporate surety bond of at least ten thousand dollars and equal to a sum equal to, the cost of erecting a new sidewalk and/or driveway where none is in existence or repairing an existing

sidewalk and/or driveway. (1994 C., § 20.26.140; Ord. No. 68604, § 9, 3-16-2010.)

20.26.150 Building demolition.

Whenever any building or structure on any premises is wrecked, removed or demolished, in whole or in part, and the building or structure is served by a coal hole, cellar or basement door or passageway, water stopcock box, or gas stopcock box, which is located within the public sidewalk area adjacent to the building or structure, and is abandoned, the owner, his agent, contractor or subcontractor engaged in the wrecking, demolition or removal of the building or structure shall at the time of the demolition, removal or wrecking remove or fill in with earth, sand or other similar material, properly tamped and compacted, the coal hole, the cellar or basement door or passageway, water stopcock box or gas stopcock box located within the public sidewalk or parkway and shall cause the surface of same to be paved with materials equal to the surface materials of the surrounding public sidewalk. The paving shall be at the established grade of the sidewalk and shall be level with the sidewalk surface adjoining the same. (1994 C., § 20.26.150; Ord. No. 68604, § 9, 3-16-2010.)

20.26.160 Bonding persons doing concrete work for hire.

Every person, firm, or corporation engaged in the business of doing concrete work for hire in the public sidewalk area shall give bond to the City in the sum of ten thousand ($10,000.00) dollars.

This bond shall be given prior to the issuance of any permits from the Department of Streets for sidewalk work.

The bond shall be approved by the Comptroller and shall be filed with the Register and conditioned that the party principal therein will faithfully observe all directions of the Director of Streets, or his agents, and also all City ordinances relating to construction. All concrete work must be done by the principal, or under the direction of the principal and executed in a workmanlike manner. The principal shall indemnify and save the City harmless from all accidents and damages caused by any negligence in protecting their work or by any unlawful or inadequate work done by themselves or their agents. The bond shall also be for the benefit of any person or persons injured, or whose property is injured, by the violation or neglect to observe the requirements of the Department of Streets. The bond shall be considered in effect until the City is notified, in writing, of cancellation by the bonding company. The indemnifying bond shall be written by a person, firm, or corporation authorized to do business in the state and shall be approved by the Comptroller. (1994 C., § 20.26.160; Ord. No. 68604, § 9, 3-16-2010.)

20.26.170 Penalty for violation of Section 20.26.160.

Any person, firm, or corporation who shall do any concrete work in the public sidewalk area without giving bond to the City as required by Section 20.26.160 shall be in violation of the provisions of Section 20.26.160, and upon the conviction of same shall be fined not less than fifty dollars, nor more than five hundred dollars for each offense, or by imprisonment for not more than ninety days, or by both fine and imprisonment. Each day's violation shall constitute a separate offense. (1994 C., § 20.26.170; Ord. No. 68604, § 9, 3-16-2010.)

20.26.175 Bonding of persons doing asphalt paving work for hire in the public right-of-way.

A. Every person, firm, or corporation engaged in the business of doing asphalt paving work for hire in the public right-of-way area shall give bond to the City in the sum of ten thousand dollars.

This bond shall be given prior to the issuance of any permits by the Department of Streets for right-of-way work.

Said bonds shall be approved by the Comptroller and shall be filed with the Register of the City and conditioned that the party principal therein will faithfully observe all directions of the Director of Streets, or his agents, and also all City ordinances relating to construction. All asphalt paving work must be done by the principal, or under the direction of such principal and executed in a workmanlike manner. The principal shall indemnify and save the City harmless from all accidents and damages caused by any negligence in protecting their work or by any unlawful or inadequate work done by themselves or their agents. Said bond shall also be for the benefit of any person or persons injured, or whose property is injured, by the violation or neglect to observe the requirements of the Department of Streets. Said bond shall be considered in effect until the City is notified, in writing, of cancellation by the bonding company. Such indemnifying bond shall

be written by a person, firm, or corporation authorized to do business in the state and shall be approved by the Comptroller of the City.

B. Any person, firm, or corporation who shall do any asphalt paving work, for hire, in the public right-of-way without giving bond to the City as required by Subsection A of this section shall be in violation of the provisions of Subsection A of this section, and upon the conviction of same shall be fined not less than fifty dollars, nor more than five hundred dollars for each such offense, or by imprisonment. Each day's violation shall constitute a separate offense. (1994 C., § 20.26.175; Ord. No. 68604, § 9, 3-16-2010.)

20.26.180 Hazardous sidewalks—Notice to repair.

Whenever the Director of Streets, or his authorized representative, shall be informed that any sidewalk lawfully used by the public in the City is in a hazardous condition likely to cause bodily injury to persons using the same, he shall cause reasonable protective measures to be taken to guard the public and shall notify the owner through reasonable means of the situation and at such time command the owner to repair or replace the sidewalk within thirty days from the receipt of the notification or, if the City has a responsibility of correcting any condition contributing to the hazard, then within thirty days from the completion of the correction. (1994 C., § 20.26.180; Ord. No. 68604, § 9, 3-16-2010.)

20.26.190 Hazardous sidewalks—Appeal—Time extension.

Any owner of such a sidewalk may, within the thirty days after receipt of the Director's notice or completion of the corrective action by the City, appeal to the Board of Public Service the Director's determination of the hazardous condition of the sidewalk, or seek an extension of time for accomplishing the repair of the sidewalk, which may be granted by the Board if the sidewalk can be immediately and temporarily rendered safe for the public and the owner so alleviates the condition. While an appeal remains undetermined, the owner shall not be prosecuted and when the sidewalk condition is alleviated to the satisfaction of the Board and within the time granted by the Board, the owner shall not be prosecuted. (1994 C., § 20.26.190; Ord. No. 68604, § 9, 3-16-2010.)

20.26.200 Hazardous sidewalks—Penalty for violation.

If the owner shall fail to repair or replace a hazardous sidewalk, or portion thereof within thirty days after notification by the Director unless the time is extended as provided in Section 20.26.190, or shall fail to appeal as provided, or shall fail to repair or replace the sidewalk or portion thereof as may be ordered by the Board, providing that in the case of raised sidewalk blocks caused by tree roots raising the sidewalk blocks the City must first have taken all steps required by the Municipal Code for the correction thereof, he shall be deemed guilty of violation of Sections 20.26.180—20.26.200 and shall upon conviction be punished by a fine of not less than twenty-five dollars nor more than one hundred dollars and each day that any violation shall continue shall constitute a separate offense. (1994 C., § 20.26.200; Ord. No. 68604, § 9, 3-16-2010.)

20.26.210 Tax bill for sidewalk repair—Issued when.

A. The Board of Public Service is hereby authorized to issue special tax bills for sidewalk repair on all public streets within the City where property owners have refused to accept the City's fifty percent sidewalk shared cost program. Said tax bills shall be in ten (10) equal annual payments due upon service of the notice of said tax bills.

B. The Director of Streets shall monthly forward to the Board of Public Service a list of locations where special tax bills should be issued. The Board of Public Service, as authorized by Article XXIII of the City Charter, shall prepare and issue said tax bills. (1994 C., § 20.26.210; Ord. No. 68604, § 9, 3-16-2010.)

20.26.220 Curbs.

No new or replacement curbing or new or replacement sidewalk within ten (10) feet of curbing at an intersection is to be constructed unless the curb and sidewalk configuration be constructed so as to provide a gradual slope to the level of the street from the grade of the sidewalk and provide an uninterrupted line of travel between pedestrian and motorized lines of travel, and at other points where necessary to avoid abrupt changes in grade. The Board of Public Service's standard specification for the construction of a handicap access ramp (wheelchair ramp) shall be used as the primary design pattern for the construction of the replacement sidewalk and curbing unless the existing configuration of curbing, sidewalk and other existing structures is such as to inhibit its implementation; in which case, the Street Department and the Office of the Disabled shall prescribe standards of slope, gradient and slip-resistant qualities to assure the sidewalk will

accommodate a person in a wheelchair or other person with disabilities. These standards shall be included in the Revised Traffic Code. (1994 C., § 20.26.220; Ord. No. 68604, § 9, 3-16-2010.)

20.26.230 Contracts for repairs.

Provided an appropriation has been made to pay costs, the Board of Public Service is authorized to let and enter into annual contracts from the first day of July of every year for emergency work required for the maintenance and necessary repairs of sidewalks which require prompt attention, as determined by the Director of Streets. The emergency work and necessary repairs shall be done with materials similar to the existing sidewalks. (1994 C., § 20.26.230; Ord. No. 68604, § 9, 3-16-2010.)

20.26.240 Sidewalks—Authority of Street Department to repair.

A. The Street Department is hereby authorized to repair or have repaired sidewalks that abut property in zoning districts "A" through "G" or abuts property in any zoning district upon which is located a building designed for and used primarily for residential purposes which are in poor condition and need of repair as determined by the Director of Streets or the Director's designee and requiring that the property owners pay one-half of the total repair cost. This shall include sidewalks that are on a private street if such street is open to the general public.

B. Notwithstanding any provision of this section to the contrary, owners of residential and commercial property shall not be required to pay the repair cost of any portion of an abutting sidewalk which has been damaged by trees growing in the public easement immediately abutting such sidewalk. (1994 C., § 20.26.240; Ord. No. 68604, § 9, 3-16-2010.)

20.26.250 Notice to property owners.

The Director of Streets shall, as authorized by Section 20.26.010, notify property owners of sidewalks in need of repair. He shall also notify said property owners that are covered under Sections 20.26.240—20.26.280 that the City will pay half the cost of repair if the owner provides matching funds. (1994 C., § 20.26.250; Ord. No. 68604, § 9, 3-16-2010.)

20.26.260 Notice of costs to property owners.

Upon completion of work the Street Department shall notify the property owner in writing of their cost of the work and the property owner shall have ten (10) months in which to pay the bill. (1994 C., § 20.26.260; Ord. No. 68604, § 9, 3-16-2010.)

20.26.270 Special tax lien.

Any covered property owner who has been notified of a defective sidewalk and refuses to voluntarily comply with the fifty percent shared cost program shall have a special tax lien as authorized by Article XXIII of the Charter of the City placed against their property. (1994 C., § 20.26.270; Ord. No. 68604, § 9, 3-16-2010.)

20.26.280 Nonentitlement to credit or rebate.

Any non-covered property owner may make repairs as authorized by Section 20.26.050; however, he shall not be entitled to any rebate as authorized herein. (1994 C., § 20.26.280; Ord. No. 68604, § 9, 3-16-2010.)

20.26.290 Residential walks—Special revolving fund.

There is hereby created as part of the matching funds program here established, a special revolving account to administer said program for each ward as established in the City; upon the receipt of payment of funds by the property owner in compliance with the billing provisions of Section 20.26.260, the funds so received and any interest earned on such funds shall be deposited in the revolving account of the ward in which the improvements have been made. Thereafter said funds and interest shall not be transferred or reallocated to any other account or fund, nor shall said funds or interest be assigned to general revenue, but said funds and interest shall be used solely in furtherance of the purposes stated in Section 20.26.240 within the ward boundaries of the ward for which that specific account or revolving fund has been established. (1994 C., § 20.26.290; Ord. No. 68604, § 9, 3-16-2010.)

Chapter 20.28

OBSTRUCTIONS AND ENCROACHMENTS

Sections:

20.28.010 Authority of Director of Streets.
20.28.020 Notice to owner.
20.28.030 Extension of time for compliance.
20.28.040 Duties—Penalty.
20.28.050 Removal by Director of Streets.
20.28.060 Special tax bill.
20.28.070 Duty of police.
20.28.080 Material from burned buildings.

20.28.090 Landings, balconies or steps.
20.28.100 Canvas awnings.
20.28.110 Parking ramp permit—Required.
20.28.120 Parking ramp permit—Application.
20.28.130 Parking ramp permit—Hearing.
20.28.140 Parking ramp permit—Revocation—Nontransferable.
20.28.150 Banner permit.
20.28.160 Sidewalk café permit.
20.28.170 Bus shelter permit.

20.28.010 Authority of Director of Streets.

Whenever it shall come to the knowledge of the Director of Streets that any street, alley, sidewalk, or other right-of-way that has been duly dedicated or established according to law has not been opened, is in any manner illegally obstructed, or that there are any illegal encroachments upon any public rights-of-way within the City limits and if he shall find that the removal thereof is desirable as a matter of public convenience, he shall prepare a notice for removal to be directed to the owner of real property at the location of the illegal obstruction or encroachment. (1994 C., § 20.28.010; Ord. No. 68604, § 10, 3-16-2010.)

20.28.020 Notice to owner.

The Director of Streets, through his agents, shall notify by first class mail with postage prepaid the owner of the real property of the location and description of the obstruction or encroachment and the duty to remove said obstruction or encroachment within ten days from the date of the notice.

Notice by first class mail shall be deemed to be received seventy-two hours after it is mailed. The Director of Streets shall also attach a copy of the notice to the obstruction or encroachment directing the owner of the real property to remove the obstruction or encroachment within ten days, and shall take a photograph of the obstruction or encroachment within the notice attached. The removal period provided in the copy of the attached notice shall correspond to the ten-day removal period stated in the notice delivered through the mail. (1994 C., § 20.28.020; Ord. No. 68604, § 10, 3-16-2010.)

20.28.030 Extension of time for compliance.

If the owner of the real property, upon receipt for the removal notice, is unable to comply with the order of the Director of Streets for some reasonable cause, the Director of Streets may grant an extension of time. However, if the obstruction constitutes an immediate hazard, the Director may cause it to be removed immediately. (1994 C., § 20.28.030; Ord. No. 68604, § 10, 3-16-2010.)

20.28.040 Duties—Penalty.

It shall be the duty of every owner of abutting real property to not place or permit illegal obstructions or encroachments in the public right-of-way. No person, firm, corporation or partnership shall place any object in the right-of-way without first having obtained a proper permit from the Board of Public Service. Any person, firm corporation or partnership who shall violate the provisions of this section and who shall fail, refuse or neglect to remove the illegal obstruction or encroachment within the time period allotted for removal, shall be punished by a fine of not less than ten dollars or more than one hundred dollars; and each day that a violation shall continue shall constitute a separate offense. (1994 C., § 20.28.040; Ord. No. 68604, § 10, 3-16-2010.)

20.28.050 Removal by Director of Streets.

If upon the expiration of the time set out in the notice served under the provisions of Sections 20.28.020 and 20.28.030 the obstructions or encroachments are not removed, the Director of Streets shall have them removed. (1994 C., § 20.28.050; Ord. No. 68604, § 10, 3-16-2010.)

20.28.060 Special tax bill.

As soon as the amount of the entire expense of the removal under the provisions of Section 20.28.050 shall have been ascertained, it shall be assessed in favor of the City, against the ground fronting upon the obstruction or encroachment, pro rata, and the owner thereof, and a special tax bill shall be issued therefor by the Comptroller and delivered to the Collector for collection. (1994 C., § 20.28.060; Ord. No. 68604, § 10, 3-16-2010.)

20.28.070 Duty of police.

It shall be the duty of police in their respective districts to enforce the provisions of this chapter, and to arrest any person violating any provisions thereof. It shall also be their duty to promptly report to the Director of Streets any and all streets or highways upon which any article has been placed, spilled or thrown in violation of the provisions of this chapter. They shall examine the condition of the streets and alleys within

their respective districts from time to time, and report, without delay, to the Director of Streets, through the Police Commissioners such streets or highways as are obstructed in violation of any of the provisions of this chapter. (1994 C., § 20.28.070; Ord. No. 68604, § 10, 3-16-2010.)

20.28.080 Material from burned buildings.

Whenever a public sidewalk is obstructed by debris or rubbish caused by the burning of any building it shall be the duty of the owner of the property or his duly authorized agent to cause the same to be removed within seventy-two hours thereafter. All serviceable building material which may be collected after the burning of the building may be placed by the owner or his duly authorized agent upon the street in front of the property. In no case shall the space thus occupied exceed that permissible in Section 20.32.090 nor shall he be allowed to occupy this space for a period longer than one month unless a building permit is taken out for the reconstruction of the building, and a permit from the Director of Streets is issued for the occupation of the street, alley or sidewalk. (1994 C., § 20.28.080; Ord. No. 68604, § 10, 3-16-2010.)

20.28.090 Landings, balconies or steps.

If any owner of a building or his duly authorized agent shall construct or allow to be constructed a landing, gallery, balcony, bay or show window, permanent platform, column, steps or any part of his building so that it projects beyond the building line of a street, into, on or over a public sidewalk, or shall fail to remove the same forthwith, when notified by the Director of Streets, he shall be deemed guilty of a misdemeanor; provided, however, that nothing herein contained shall prohibit the erection of a balcony from the second floor of any house extending not more than three feet beyond the building line; provided further, that nothing contained in this section shall be construed as prohibiting the repair, alteration or replacement with the same or different materials, in accordance with plans approved by the Board of Public Service, of any steps heretofore constructed beyond the building line of a street and into, on or over a public sidewalk. (1994 C., § 20.28.090; Ord. No. 68604, § 10, 3-16-2010.)

20.28.100 Canvas awnings.

No person shall erect, or cause to be erected, and no person shall maintain, or cause to be maintained, any canvas awning that projects over the public highway in the City, unless the framework of the awning is not less than seven and one-half feet above the surface of the highway over which the awning projects, and unless the curtain and lowest part of the awning are not less than six feet eight inches above the surface of the highway over which the awning projects.

"Public highway" as used in this section shall be construed to include the sidewalk area as well as the roadway of the highway. (1994 C., § 20.28.100; Ord. No. 68604, § 10, 3-16-2010.)

20.28.110 Parking ramp permit—Required.

The Board of Public Service is authorized and directed to issue a special encroachment permit for the use of space above the public street or public alley for the erection, construction and use of parking driveway ramps when the Board shall find, after a public hearing thereon, that the encroachment into the public street or public alley:

A. Has at least fourteen and one-half feet clearance above the portion of the public street or public alley used for the movement of automotive or other vehicles and at least twelve feet clearance above that portion of the public street used for pedestrian traffic;

B. Is constructed of materials having a fire restrictive value of at least four hours;

C. Is illuminated with lighting to an intensity of at least 0.6 footcandle power at all points of encroachment;

D. Is located within the "G" commercial, "H" commercial, "I" central business and "J" industrial use zoning districts under the comprehensive zoning ordinance of this City;

E. Is not a traffic hazard. "Traffic hazard" means that the encroachment will not interfere with the vision of the operators of motor vehicles in the operation of vehicles within two hundred feet of the encroachment and will not interfere with the movement of trucks, tractors, trailers or other commercial vehicles within two hundred feet of the encroachment because of insufficient height and clearance to the contour of the public street or public alley;

F. Does not deprive the surrounding properties within two hundred feet of the proposed encroachment of light and air;

G. Does not project more than one-fourth of the width of the public street or public alley;

H. The area of the ramp projection over the street

is not to exceed three hundred ten square feet. (1994 C., § 20.28.110; Ord. No. 68604, § 10, 3-16-2010.)

20.28.120 Parking ramp permit—Application.

Any person, firm or corporation proposing to build or erect a parking ramp which may encroach into the public street or public alley shall file an application with the Board of Public Service on the form required by the Board and submit detailed plans thereof showing the proposed encroachment. (1994 C., § 20.28.120; Ord. No. 68604, § 10, 3-16-2010.)

20.28.130 Parking ramp permit—Hearing.

Upon receipt of the application the Board of Public Service shall within fifteen days conduct a hearing thereon. The Board shall post, at least five days before the hearing, a notice on the property from which the proposed parking driveway ramp will project, showing a drawing of the proposed encroachment and also a notice of the time, place and date where the hearing will be held. (1994 C., § 20.28.130; Ord. No. 68604, § 10, 3-16-2010.)

20.28.140 Parking ramp permit—Revocation—Nontransferable.

The permit issued under the provisions of Sections 20.28.110—20.28.140 shall be revocable by the Board of Public Service upon the giving of a sixty-day notice to the holder thereof if the Board shall find that the parking driveway ramp interferes with or impedes, in any way, the movement of traffic along the public street or public alley. The permit granted shall not be transferable and should the property be sold or in any way transferred, either by sale, gift, lease, or in any other manner, the new owner or lessee shall be required to apply for a new permit if the party desires to continue such encroachment. If a permit is revoked or terminates under the provisions of Sections 20.28.110—20.28.140, the encroachment shall be immediately removed. (1994 C., § 20.28.140; Ord. No. 68604, § 10, 3-16-2010.)

20.28.150 Banner permit.

No person shall erect, or cause to be erected, and no person shall maintain or cause to be maintained a banner mounted on City light standards without an encroachment permit from the Board of Public Service and a banner permit from the Street Department. The fee for the banner permit shall be one hundred dollars ($100.00) per pole and the permit shall be valid for up to one year from the date of issuance. A portion of the banner permit fee, fifty dollars ($50.00) per light pole, will be refundable upon maintaining and removal of the banner(s) at the end of the year.

The fee for neighborhood organizations that are qualified 501c(3) tax-exempt groups shall be ten dollars ($10.00) per pole and the permit shall be valid for up to one year from the date of issuance. (1994 C., § 20.28.150; Ord. No. 69883, § 1, 12-4-2014; Ord. No. 68604, § 10, 3-16-2010.)

20.28.160 Sidewalk café permit.

No person or business shall have a sidewalk café without obtaining an encroachment permit from the Board of Public Service and a sidewalk café permit from the Street Department. The fee for the sidewalk café permit shall be two hundred dollars ($200.00) plus $1.00 per square foot of sidewalk being utilized for the café. The sidewalk café permit shall be valid for up to one year from the date of issuance. (1994 C., § 20.28.160; Ord. No. 68604, § 10, 3-16-2010.)

20.28.170 Bus shelter permit.

No person or business shall erect, or cause to be erected, or maintain, or cause to be maintained, a bus shelter on a public sidewalk without an encroachment permit from the Board of Public Service and a bus shelter permit from the Street Department. The bus shelter permit fee shall be two hundred dollars ($200.00) annually per shelter. The bus shelter permit fee is separate from the ten dollar ($10.00) per shelter application fee required every three years by ordinance. (1994 C., § 20.28.170; Ord. No. 68604, § 10, 3-16-2010.)

Chapter 20.30

EXCAVATIONS

Sections:

20.30.010 Permit required.
20.30.020 Installation of scales or railroad switch track.
20.30.030 Deposit or bond.
20.30.040 Regulations.
20.30.050 Footbridge over sidewalk excavations.
20.30.060 Temporary roadway.
20.30.070 Length limit.
20.30.080 Fencing and lighting.
20.30.090 Deposits of materials excavated.
20.30.100 Refilling—Layers—Tamping.

20.30.110 Refilling—General regulations.
20.30.120 Refilling—Reasons for not granting a permit.
20.30.130 Trenches.
20.30.140 Inspector's time.
20.30.150 Lateral supports.

20.30.010 Permit required.

Subject to the provisions of this chapter, no person except the Water Commissioner shall make or cause to be made any excavation in any public street or alley without written permission of the Director of Streets so to do. The Water Commissioner at the time of ordering any excavation shall notify the Director of Streets of the action. It is provided, however, that such permission shall not be required for public work to be done under authority and supervision of the Board of Public Service or its duly authorized agent, and applicants qualified to pay annual inspection fees pursuant to Section 20.30.140 may be granted permits on an annual basis. (1994 C., § 20.30.010; Ord. No. 68604, § 11, 3-16-2010.)

20.30.020 Installation of scales or railroad switch track.

No permit for excavation in any public street or alley for the purpose of installing a vehicular platform scale or railroad switch track shall be issued by the Director of Streets unless the applicant for such a permit shall have secured from the Board of Public Service a permit for the installation of such scale or switch track. (1994 C., § 20.30.020; Ord. No. 68604, § 11, 3-16-2010.)

20.30.030 Deposit or bond.

Subject to the exceptions specified by ordinance, no excavation for any purpose whatever shall be made in a public street, sidewalk or alley without a permit from the Director of Streets. The permit may be for any purpose other than for the installation of a vehicular platform scale or railroad switch track. Applicants for all permits for excavations shall provide liability insurance in the amount of five hundred thousand dollars ($500,000.00) saving the City harmless from all accidents and damages caused by any negligence in protecting their work or by any unlawful or inadequate work done by themselves or their employees. Applicants for permits for excavation less than twenty feet in length shall deposit with the Treasurer a sum of money to be fixed by the Director of Streets to cover the entire expense of backfilling the pavement or surfacing material, or post a bond in the amount of ten thousand dollars ($10,000.00) conditioned that the applicant will indemnify the City for the entire cost of backfilling and repaving. Any applicant who is a bonded and licensed drainlayer or plumber, in accordance with the building code of the City, need not furnish additional bond, provided the existing bond provides that the applicant will indemnify the City for the cost of backfilling and paving. If the cash deposit is insufficient, the permittee shall pay the deficiency to the Treasurer within ten days after notice by mail. Failure to pay the deficiency shall be grounds for refusing further permits. (1994 C., § 20.30.030; Ord. No. 68604, § 11, 3-16-2010.)

20.30.040 Regulations.

Excavations in any street, sidewalk, alley or other public way shall not remain open unless work is progressing at a reasonable rate. The Director of Streets may, at his discretion and for good cause, grant an extension to the excavation permit allowing the excavation to remain open. If, in the opinion of the Director of Streets, any excavation work is not continuing at a reasonable rate, he shall cause the excavation to be backfilled and the cost thereof charged to the contractor holding the permit for the excavation; provided first, that written notice be given to the permittee and that twenty-four hours elapse since receipt of the notice. The notice shall be mailed to the address of the permittee as shown on the permit and notice shall be deemed received thirty-six hours after mailing. (1994 C., § 20.30.040; Ord. No. 68604, § 11, 3-16-2010.)

20.30.050 Footbridge over sidewalk excavations.

Whenever any person shall excavate the sidewalk of any street for building purposes, he shall place a strong and substantial footbridge over the excavation in the line of the sidewalk. The bridge shall be at least five feet broad and securely railed on each side, so that foot passengers may pass over it safely and conveniently at all times. (1994 C., § 20.30.050; Ord. No. 68604, § 11, 3-16-2010.)

20.30.060 Temporary roadway.

In all cases where excavations are made entirely across the public highway, a substantial roadway shall be maintained by the party making the excavation across the highway, until the excavation is refilled, and at all times be subject to the approval of the Director of

Streets. (1994 C., § 20.30.060; Ord. No. 68604, § 11, 3-16-2010.)

20.30.070 Length limit.

No excavation shall be made in any public street or alley more than two blocks in length at any one time except by special permit from the Director of Streets. (1994 C., § 20.30.070; Ord. No. 68604, § 11, 3-16-2010.)

20.30.080 Fencing and lighting.

Every person who shall cause to be made any excavation in or adjoining a public street, sidewalk, alley or public place shall cause the same to be protected in the manner as may be specified in the excavation permit, and so placed as to prevent persons, animals or vehicles from falling into the excavations. Every person making or causing to be made any excavation, and every person who shall occupy or cause to be occupied any portion of any public street, sidewalk, alley, or public place with building materials or any obstruction, shall cause one red or amber light to be securely and conspicuously posted on or near the excavation, building material or obstruction provided the obstruction does not extend more than ten feet in length, and if over ten feet or less than fifty feet, two red or amber lights, one at each end, shall be so placed, and one additional light for each additional fifty feet or part thereof, and shall keep the light burning or flashing during the entire night.

Whether defendant street railway company was negligent in placing lights to guard street excavation as required by ordinance was question for jury.

Tort liability cannot be imposed on a City for failure to observe the requirements of its own ordinances. (1994 C., § 20.30.080; Ord. No. 68604, § 11, 3-16-2010.)

20.30.090 Deposits of materials excavated.

In making excavations in any public street or alley, the paving material and earth removed must be deposited in a manner that will occasion the least inconvenience to the public with provision for proper surface drainage and a safe passageway for travel. (1994 C., § 20.30.090; Ord. No. 68604, § 11, 3-16-2010.)

20.30.100 Refilling—Layers—Tamping.

Excavations in any street or alley shall be refilled immediately after the excavation project is completed. The excavation shall be refilled with granular material in a size and thickness determined by the Director of Streets. The refill material shall be compacted with equipment approved by the Director of Streets until the excavation is filled up to the proper line for placing the pavement thereon. (1994 C., § 20.30.100; Ord. No. 68604, § 11, 3-16-2010.)

20.30.110 Refilling—General regulations.

If the refilling is not done in compliance with the provisions of this chapter, then the Director of Streets may remove all the earth from the excavation and have the same refilled at the expense of the person who made the excavation, and charge the cost thereof against the deposit of money belonging to the aforesaid person. The street or alley pavement, after refilling, shall be placed in as good shape and condition as it was before the excavation was made. All deficiencies in material shall be made good with new material by the persons making the excavation. Backfilling may be done with chat or other material approved by the Director of Streets. All dirt or other substance remaining at or near any excavation after the refilling thereof shall be removed from the site by or at the direction of the person making the excavation. (1994 C., § 20.30.110; Ord. No. 68604, § 11, 3-16-2010.)

20.30.120 Refilling—Reasons for not granting a permit.

A contractor having a record of three or more deficient excavations, as determined by the Director of Streets, within a period of one year shall be refused any additional permits for a period not to exceed one year from the date of the determination of the last deficiency as defined, following a hearing before the Board of Public Service.

No contractor may subcontract all or any portion of any work to be done concerning an excavation in a public street or alley, nor shall any contractor be permitted to obtain a permit under his/her name for use by another contractor or person without the approval of the Director of Streets. (1994 C., § 20.30.120; Ord. No. 68604, § 11, 3-16-2010.)

20.30.130 Trenches.

Whenever a trench is excavated in any public street or alley, the Director of Streets shall supervise the opening and closing of the trench, or whenever a trench is excavated in any public street or alley upon which is laid a pavement of granite, brick, asphalt, bitulithic, wood blocks or concrete, the Director of Streets shall direct how much of a pavement it will be necessary to

remove. (1994 C., § 20.30.130; Ord. No. 68604, § 11, 3-16-2010.)

20.30.140 Inspector's time.

A. Whenever a person applies for a street excavation permit, he shall state in writing in his application the hour he will commence work or the manner in which notice of commencement will be given. An inspection fee of $125.00 per excavation shall be charged for work under twenty feet (20') in length and for excavations over twenty feet (20') shall be charged at the rate of $20.00 per day, provided that an applicant who, in the five preceding years, have regularly done their own backfilling and have paid inspection fees in excess of $5,000.00 per year may elect to pay a flat annual fee for inspection in an amount equal to the average of the inspection fees paid annually by such applicant in the five preceding years, such annual fee to be in quarterly installments.

B. Double Fees. In case any work for which a permit is required by this Code is started or proceeded prior to obtaining said permit, the total normal fees applicable shall be doubled, but the payment of said double fee shall not relieve any persons from fully complying with the requirements of this Code for performance or execution of the work, nor from other penalties prescribed by law. (1994 C., § 20.30.140; Ord. No. 68604, § 11, 3-16-2010.)

20.30.150 Lateral supports.

Whenever any street, alley, or other public place shall have been deprived of its lateral support by any excavation alongside the street, alley or other public place, or sufficiently close thereto to cause the surface of the street to sink, or render it unsafe for travel, the Director of Streets shall notify, in writing, the owner of the land on which the excavations shall exist or his duly authorized agent, or shall cause a notice to be posted on the land, to restore the lateral support, then the Director of Streets shall cause the excavations to be filled to the extent necessary to restore the lateral support of the street, alley or other public place. The cost thereof shall be repaid to the City by the owner of the land. (1994 C., § 20.30.150; Ord. No. 68604, § 11, 3-16-2010.)

Chapter 20.32

CONSTRUCTION OBSTRUCTING STREETS AND SIDEWALKS

Sections:

20.32.010 Permit required.
20.32.020 Building permit and deposit required.
20.32.030 Permittee to keep streets, alleys and sidewalks in clean and orderly condition.
20.32.040 Failure to keep streets clean.
20.32.050 Additional deposit.
20.32.070 Driveways—Elevation of temporary sidewalks.
20.32.080 Roof over sidewalks.
20.32.090 Extent of occupation.
20.32.100 Protection of paving—Removal of earth and rubbish.
20.32.110 Derricks.
20.32.120 Termination of occupation.
20.32.130 Red or amber lights.
20.32.140 Permission to occupy may be extended beyond the limits of proposed buildings.
20.32.150 Withdrawal of deposit.

20.32.010 Permit required.

Any person desiring temporarily to occupy any portion of any public street, alley or sidewalk for the purpose of placing thereon materials or rubbish from building operations or for excavation of any area under a sidewalk, or for any purpose whatever in connection with the erection, removal, alteration or repair of any building or other structure, shall apply to the Director of Streets for a permit for the temporary occupation aforesaid, and it shall be unlawful to occupy or obstruct any street, alley or sidewalk as aforesaid without a permit from the Director of Streets. (1994 C., § 20.32.010; Ord. No. 68604, § 12, 3-16-2010.)

20.32.020 Building permit and deposit required.

The permit required by Section 20.32.010 shall only be issued by the Director of Streets upon the presentation of a building permit, from the Building Commissioner, authorizing the work which is to be done, and the City Treasurer's receipt that the applicant has deposited with the City Treasurer the sum of fifty dollars, without regard to the number of permits as a

special fund, to be used by the Director of Streets to defray expenses by reason of a failure of the person, to whom the permit may be issued, to keep the streets, alleys and sidewalks adjacent to the premises whereon the building operations are carried on in a clean and orderly condition during the time for which permission for temporary occupation is asked. (1994 C., § 20.32.020; Ord. No. 68604, § 12, 3-16-2010.)

20.32.030 Permittee to keep streets, alleys and sidewalks in clean and orderly condition.

It is the duty of any person carrying on any building operations to keep the streets, alleys and sidewalks adjoining the premises whereon the operations are conducted in a clean and orderly condition during operations, and at the expiration of the time stipulated in the permit, which shall not exceed the time stipulated in the building permit, or whenever ordered by the Director of Streets, the person to whom the permit may be issued shall remove all materials and rubbish from the streets, alleys and sidewalks adjoining the premises and shall leave the same in a clean and orderly condition. (1994 C., § 20.32.030; Ord. No. 68604, § 12, 3-16-2010.)

20.32.040 Failure to keep streets clean.

The Director of Streets is authorized to clean the streets, alleys or sidewalks adjoining any premises whereupon building operations are being carried on whenever the same may be found in an unclean or disorderly condition. He shall remove or repile any building materials, rubbish or obstructions which may be found outside of the spaces authorized by his permit to be occupied thereby or within four feet of any fireplug or electric conduit manhole. He shall issue a voucher for the payment of the cost of cleaning or removal, which shall be charged against and paid from the deposit provided for in Section 20.32.020. (1994 C., § 20.32.040; Ord. No. 68604, § 12, 3-16-2010.)

20.32.050 Additional deposit.

Whenever the whole or part of the deposit required by Section 20.32.020 shall have been expended for the purpose herein described, the Director of Streets shall notify the person to whom the permit may be issued to pay so much money into the City Treasury as will bring the deposit again up to the amount hereinbefore required, and in the event of the failure of the depositor to deposit the additional sum the Director of Streets shall revoke the permit and it shall be unlawful to occupy any of the aforesaid streets, alleys or sidewalks with materials, dirt or rubbish after the revocation of the permit or to neglect or refuse to remove all materials, dirt and rubbish from the streets, alleys, and sidewalks after having been notified so to do by the Director of Streets. (1994 C., § 20.32.050; Ord. No. 68604, § 12, 3-16-2010.)

20.32.070 Driveways—Elevation of temporary sidewalks.

It is not intended by this chapter to prohibit the maintenance of a driveway for the delivery of material across the sidewalk from the curb line to the building side. It shall be permitted for the purpose of delivering material to the basement of the building to elevate temporary sidewalks to a height not exceeding four feet above the curb level of the street. (1994 C., § 20.32.070; Ord. No. 68604, § 12, 3-16-2010.)

20.32.080 Roof over sidewalks.

If the building to be erected is more than four stories in height and is set at or near the street line, there shall be built over the sidewalk a roof, having a framework and covering composed of supports and stringers of three by twelve timbers, not more than eight feet from centers, covered by two layers of two-inch plank. The roof shall be maintained as long as material is being used or handled on the street front and above the level of the sidewalk. In all such cases the temporary sidewalks and their railings and approaches and the roofs over the same shall be made, as regards ease of approach, strength and safety, to the satisfaction of the Director of Streets. (1994 C., § 20.32.080; Ord. No. 68604, § 12, 3-16-2010.)

20.32.090 Extent of occupation.

The extent of occupation of a street, alley or sidewalk or part thereof for which a permit may be granted under this chapter by the Director of Streets shall be as follows:

The permit shall not authorize the occupation of any sidewalk, street or alley, or part thereof, other than that immediately in front of or in the rear of the premises for the building upon which the permit is issued.

The occupation of the street for the storage of building materials shall never exceed, in front of any one building, one-quarter of the width of the roadway of the same, and in the streets containing railroad tracks the occupation shall not exceed one-half the distance from the curbstone to the railroad tracks. The

occupation of any public alley, as aforesaid, shall not exceed one-half of the width of the same. (1994 C., § 20.32.090; Ord. No. 68604, § 12, 3-16-2010.)

20.32.100 Protection of paving—Removal of earth and rubbish.

Brick, asphalt and bituminous macadam paving shall be protected with wood covering composed of one-inch plank before any material is placed on it. Earth taken from excavations and rubbish taken from buildings must not be stored upon the sidewalk or roadway of streets or alleys, and must be removed from day to day as rapidly as produced. Where dry rubbish likely to produce dust is being handled, it must be kept wet, so as to prevent its being blown about by the wind. (1994 C., § 20.32.100; Ord. No. 68604, § 12, 3-16-2010.)

20.32.110 Derricks.

For all buildings more than four stories in height the use of derricks set upon the sidewalks is prohibited. Materials for buildings shall be hoisted entirely within the inclosing walls of the same. (1994 C., § 20.32.110; Ord. No. 68604, § 12, 3-16-2010.)

20.32.120 Termination of occupation.

The permission to occupy streets and sidewalks for purposes of building is intended only for use in connection with the actual erection, repair, alteration or removal of buildings and must terminate with the completion of the operation. It shall be unlawful to occupy any sidewalk or alley after the expiration of the time for which a permit has been issued by the Director of Streets. It shall also be unlawful to occupy a sidewalk, street or alley, under authority of the permit for the storage of articles not intended for immediate use in connection with the operations for which the permit has been issued. (1994 C., § 20.32.120; Ord. No. 68604, § 12, 3-16-2010.)

20.32.130 Red or amber lights.

Red or amber lights shall be displayed and maintained during the whole of every night at each end of every pile of material in any street or alley and at each end of every excavation. Lights shall be securely and conspicuously posted on or near the excavation materials or obstruction. (1994 C., § 20.32.130; Ord. No. 68604, § 12, 3-16-2010.)

20.32.140 Permission to occupy may be extended beyond the limits of proposed buildings.

It is provided that if the written consent and a waiver of claims for damages against the City of the owners of the property abutting upon the site of the proposed buildings first obtained and filed with the Director of Streets, the permission to occupy the roadway may be extended beyond the limits of the building, upon the same terms and conditions as those herein fixed for the streets in front of the building sites themselves. (1994 C., § 20.32.140; Ord. No. 68604, § 12, 3-16-2010.)

20.32.150 Withdrawal of deposit.

Whenever any person who has a deposit with the City Treasurer for the purpose of taking out permits as described desires to withdraw the deposit, he shall notify the Director of Streets, who thereupon shall certify to the Comptroller a voucher for the unexpended balance of the deposit; provided, that all streets, alleys or sidewalks have been cleaned, as required by this chapter, to the satisfaction of the Director of Streets. The Comptroller shall thereupon draw his warrant upon the City Treasurer in favor of the person for the amount standing to the credit of the special fund created by the payments provided, and shall take his receipt in full of all claims against the City on account of the payments. (1994 C., § 20.32.150; Ord. No. 68604, § 12, 3-16-2010.)

Chapter 20.34

RAILROAD TRACKS IN STREETS

Sections:

20.34.010 Permit required.
20.34.020 Deposit required.
20.34.030 Refund of deposit.
20.34.040 Work done by City.
20.34.050 Replenishing deposit.
20.34.060 Existing tracks.

20.34.010 Permit required.

Unless specifically authorized by an ordinance of the City, it is unlawful to construct, reconstruct, repair, maintain or remove any railroad track in any public street, highway or alley without a permit to do so from the Board of Public Service. (1994 C., § 20.34.010; Ord. No. 68604, § 13, 3-16-2010.)

20.34.020 Deposit required.

A. No such permit may be issued by the Board of Public Service unless, previous to the issuance thereof, the applicant therefor has deposited with the Comptroller the sum of fifteen dollars ($15.00) for each lineal

foot of such track to be constructed, reconstructed, repaired, maintained or removed from the public street or alley. It is provided, however, that when the deposits by any such applicant have reached the total sum of twenty thousand dollars ($20,000.00) no additional deposits shall be required from such applicant under this chapter except for the purpose of maintaining such deposit; and provided further, that the deposit of twenty thousand dollars ($20,000.00) by such applicant shall be used as a general fund for the use by the City for the proper construction, reconstruction, repair and maintenance of all the tracks of such applicant in the public streets and alleys and for the removal of such tracks and restoration of the streets and alleys upon abandonment of such tracks or discontinuance of the use thereof or revocation of the permits for such tracks.

B. The length of a track shall be the distance along the center line thereof to the mean end of the track. Where a switch or turnout is in the public street or alley, the length of the track shall be taken to the point of switch of the track. (1994 C., § 20.34.020; Ord. No. 68604, § 13, 3-16-2010.)

20.34.030 Refund of deposit.

A. The deposit required in Section 20.34.020 shall be refunded to the depositor or permittee upon the completion of the removal of all of the tracks of the permittee and restoration of the public streets and alleys from which such tracks shall have been removed, under the supervision and to the satisfaction of the Director of Streets.

B. In case the removal of tracks and restoration of the public streets and alleys under the supervision and to the satisfaction of the Director of Streets reduces the total lineal feet of tracks remaining in the public streets and alleys to less than the minimum for which a deposit of twenty thousand dollars ($20,000.00) is required, the City shall refund that portion of the deposit in excess of the amount necessary to comply with the requirements of this chapter; that is, the deposit required shall be fifteen dollars ($15.00) per lineal foot of track remaining in such public streets and alleys. (1994 C., § 20.34.030; Ord. No. 68604, § 13, 3-16-2010.)

20.34.040 Work done by City.

Upon failure of the permittee to properly construct, reconstruct, repair and maintain any of the tracks of the permittee, when notified to do so by the Director of Streets, the Director shall cause the work to be done and the cost thereof certified to the Comptroller who shall charge against the deposit the amount so certified. (1994 C., § 20.34.040; Ord. No. 68604, § 13, 3-16-2010.)

20.34.050 Replenishing deposit.

When any portion of the fund required is used by the Director of Streets, in accordance with Section 20.34.040, the permittee, upon written notice from the Director and within thirty days from the date of the notice, shall cause to be deposited with the Comptroller the amount so certified. Upon failure by the permittee to comply with the foregoing requirement, the Board of Public Service shall revoke the permit for the track involved, cause the track to be removed from the public street, highway or alley, the street, highway or alley restored and the cost of all the removal and restoration certified to the Comptroller who shall charge the amount so certified against the deposit hereinbefore required. (1994 C., § 20.34.050; Ord. No. 68604, § 13, 3-16-2010.)

20.34.060 Existing tracks.

Every railroad track now existing in any public street, highway or alley, and not authorized by ordinance, shall be subject to the provisions of this chapter, upon February 10, 1949, and the Board of Public Service is authorized and directed to notify, in writing, all permittees for the tracks to comply with the requirements of this chapter. (1994 C., § 20.34.060; Ord. No. 68604, § 13, 3-16-2010.)

Chapter 20.36

USE BY MERCHANTS

Sections:

20.36.010	**Merchandise display—Permit required.**
20.36.020	**Width of sidewalk areas.**
20.36.030	**Public hearing.**
20.36.040	**Permits for a period of three (3) days or less.**
20.36.050	**Permit cost, insurance, inspection and display of permit.**
20.36.060	**Temporary use for shipping and receiving.**
20.36.070	**Prohibitions and penalties.**
20.36.080	**Annual renewal.**

20.36.010 Merchandise display—Permit required.

Any person, firm, corporation or other entity wishing to expose, offer any merchandise, new or used,

food, horticultural product, or services by auction or otherwise upon any public street, sidewalk, or other public place or on private property abutting and in view of any public street, sidewalk or public place shall first obtain the written consent of the owner or tenant of the abutting property and a permit from the Board of Public Service. The issuance of any permits pursuant to this section shall be subject to the conditions set forth in this chapter. (1994 C., § 20.36.010; Ord. No. 68604, § 14, 3-16-2010.)

20.36.020 Width of sidewalk areas.

No permit shall be issued hereunder for occupying sidewalks of ten (10) feet or less in width measured from the curb; sidewalks of more than ten (10) feet and less than twelve (12) feet in width shall be limited to three (3) feet for such occupancy; those of twelve (12) feet and less than fifteen (15) feet in width shall be limited to four (4) feet for such occupancy; those of more than fifteen (15) feet shall be limited to five (5) feet for such occupancy. (1994 C., § 20.36.020; Ord. No. 68604, § 14, 3-16-2010.)

20.36.030 Public hearing.

Prior to the issuance of any permit for a period of more than three (3) days, the Board of Public Service shall conduct a public hearing. The applicant shall provide the office of the Secretary, Board of Public Service, on forms approved by that office, the location, the type of merchandise to be displayed and the extent of the sidewalk planned to be occupied and proof of current payment of all state and local taxes. The office of the Secretary, Board of Public Service, shall cause placards to be placed at the subject premises, and at each end of the block where the subject premises is located for a period not less than fourteen (14) days before the scheduled public hearing and notice shall be given to the Alderman of the ward in which the property is located. (1994 C., § 20.36.030; Ord. No. 68604, § 14, 3-16-2010.)

20.36.040 Permits for a period of three (3) days or less.

The Board of Public Service may issue permits for the use of any public street, sidewalk or other public place, or private property abutting and in view of any public street, sidewalk or other public place to any person, firm, corporation or other entity for a period of time not to exceed three (3) days without holding a public hearing as provided in Section 20.36.030. No such permit shall be issued for the same location or any portion thereof within six (6) months following the prior issuance of a permit as provided in this section, unless a public hearing is held. (1994 C., § 20.36.040; Ord. No. 68604, § 14, 3-16-2010.)

20.36.050 Permit cost, insurance, inspection and display of permit.

A. Upon approval of the application by the Board of Public Service, the applicant shall pay to the Department of Streets a fee of one hundred dollars ($100.00) for the permit to display merchandise plus one dollar ($1.00) per square foot of sidewalk being utilized for the display of merchandise. Such fee shall be for the investigation of conditions and inspection of the public street and sidewalk and shall be paid annually.

B. The applicant shall keep harmless and defend the City from all damages which may be sustained by it and all claims which may be made against it by reason of any injury to person or damage to property resulting from anything done in connection with the permit, and for this purpose an insurance policy providing coverage up to $100,000.00 for injury to any one person, $300,000.00 for injury to any two or more persons, and $25,000.00 for property damage, conditioned as above, approved by the City Counselor as to form and by the Comptroller as to surety, shall be filed with the Comptroller before the permit is issued.

C. All permittees shall maintain a copy of the merchandise display permit so positioned at the premises as to be conspicuous and visible to the public.

D. The Director of Streets shall cause to be made frequent inspections of all locations having merchandise display permits. (1994 C., § 20.36.050; Ord. No. 68604, § 14, 3-16-2010.)

20.36.060 Temporary use for shipping and receiving.

Merchants and manufacturers may occupy with their merchandise not more than one-half (½) of the width of the sidewalk upon which the respective merchants' or manufacturers' place of business abuts without obtaining a permit; provided, that the merchant, manufacturer, their agents or suppliers are actively engaged in the shipping or receiving of merchandise, that such use does not exceed two (2) hours in duration and that such merchandise shall not remain on the sidewalk when the place of business abutting upon such sidewalk is not open for business. (1994 C., § 20.36.060; Ord. No. 68604, § 14, 3-16-2010.)

20.36.070 Prohibitions and penalties.

A. No person, firm, corporation or other entity who shall occupy any portion of the public street, sidewalk or other public right-of-way area or private property abutting and in view of such public area for the purpose of displaying or offering for sale, by auction or otherwise, any new or used merchandise, food, horticultural products or services without a merchandise display permit. Any person, firm, corporation or other entity displaying merchandise without permit shall, upon conviction, be fined not less than fifty dollars ($50.00), nor more than five hundred dollars ($500.00), for each such offense. Each day's violation shall constitute a separate offense.

B. No person, firm, corporation or other entity, having properly obtained a merchandise display permit, shall encroach into the public right-of-way beyond the area allowed by the permit. Any object or objects found illegally encroaching into the public right-of-way shall be subject to removal as authorized by Sections 20.28.010 through 20.28.050 of the Revised Code.

C. The Board of Public Service may revoke for cause any merchandise display permit it has issued if, in the opinion of said Board, the public interest demands such revocation. Such cause shall include, but not be limited to, failure to maintain insurance as required in this chapter, failure to properly display the permit, failure to properly maintain the sidewalk area, failure to keep the area neat and orderly, for more than one instant of encroachment into the right-of-way beyond the range of the permit or for displaying items prohibited by law. (1994 C., § 20.36.070; Ord. No. 68604, § 14, 3-16-2010.)

20.36.080 Annual renewal.

A. Because permits for the private use of public rights-of-way are temporary in nature and under the provisions of Article XIII, Section 5(b) of the City Charter may be revoked at will by the Board of Public Service; the permittee shall make an application for renewal of existing permits at least annually.

B. The Secretary of the Board of Public Service shall send a notice to the holder of the permit that unless an application for renewal is received by the Board thirty (30) days prior to the day and month of approval of the permit, the permit will be revoked effective on the anniversary date thereof.

C. The application for renewal shall be made as provided in Section 20.36.030 of the Revised Code. (1994 C., § 20.36.080; Ord. No. 68604, § 14, 3-16-2010.)

Chapter 20.38

GENERAL USE RESTRICTIONS

Sections:

20.38.010 Barbed wire fences—Prohibited.
20.38.020 Barbed wire fences—Failure to remove.
20.38.030 Downspouts.
20.38.040 Signs.
20.38.050 Projections of merchandise and other articles.
20.38.060 Placing or throwing articles on highways.
20.38.070 Hoisting merchandise over thoroughfare.
20.38.080 Unauthorized obstructions, excavations and defacing property.
20.38.090 Gasoline, oil, salt water and other liquids.
20.38.100 Oil wagons and tanks.
20.38.110 Vehicles using oils.
20.38.120 Salt or salt water from ice cream vehicles.
20.38.130 Licensing certain vehicles.
20.38.140 Breaking or removal of danger signals.
20.38.150 Signposts, lanterns and clocks.
20.38.160 Playing ball games.
20.38.170 Flying kites or playing in streets.

20.38.010 Barbed wire fences—Prohibited.

It shall be unlawful for any person to erect, construct or to hereafter maintain or use any fence heretofore erected or constructed composed in whole or in part of barbed wire upon any street or any public or private alley or passage or way or other public thoroughfare which is fifteen feet or less in width within the limits of the City. Any violation hereof shall be a misdemeanor. (1994 C., § 20.38.010; Ord. No. 68604, § 15, 3-16-2010.)

20.38.020 Barbed wire fences—Failure to remove.

Any person violating the provisions of Section 20.38.010, after being duly notified by the police in writing to remove same within ninety days, shall be deemed guilty of a misdemeanor. (1994 C., § 20.38.020; Ord. No. 68604, § 15, 3-16-2010.)

20.38.030 Downspouts.

Every person owning or occupying any building in this City shall cause the pipes conducting the water from the eaves of the building to be so constructed as not to spread the water over the sidewalks. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor. (1994 C., § 20.38.030; Ord. No. 68604, § 15, 3-16-2010.)

20.38.040 Signs.

It shall be unlawful for any person to erect or cause to be erected or to maintain or cause to be erected or to maintain or cause to be maintained any signs, signbox, illuminated sign, lettered lamp or other fixture which shall extend over or upon any public highway more than eighteen inches from the property line of the highway except as authorized in the building code. (1994 C., § 20.38.040; Ord. No. 68604, § 15, 3-16-2010.)

20.38.050 Projections of merchandise and other articles.

It shall be unlawful for any person to suspend any merchandise or other article over the public highway in such a manner that the merchandise or article extends more than eighteen inches into the highway, if the merchandise or article is less than eight feet above the surface of the highway, or extends more than twenty-four inches into the highway at any height above the highway. (1994 C., § 20.38.050; Ord. No. 68604, § 15, 3-16-2010.)

20.38.060 Placing or throwing articles on highways.

It shall be unlawful to place or throw or cause to be placed or thrown upon any public highway or other public place in this City any article whatsoever so as to obstruct or otherwise encumber the highway. (1994 C., § 20.38.060; Ord. No. 68604, § 15, 3-16-2010.)

20.38.070 Hoisting merchandise over thoroughfare.

Any person in this City who shall hoist, lower or let down on the outside of any building over any thoroughfare any merchandise, grain or building or other material or article, shall be deemed guilty of a misdemeanor. (1994 C., § 20.38.070; Ord. No. 68604, § 15, 3-16-2010.)

20.38.080 Unauthorized obstructions, excavations and defacing property.

Any person who shall himself, or by another, place, use, utilize or maintain upon any highway or other public place any obstruction not authorized by this Code or by ordinance, or make any excavation in such place without lawful authority, or displace or remove in such public place any cover of any sewer manhole, inlet, catch basin, stop valve, water meter or any cover belonging to any public utility corporation without lawful authority, or displace or remove any stones, stakes or other landmarks placed by any officer of this City, under authority thereof, or injure or deface any property, shall be deemed guilty of a misdemeanor. (1994 C., § 20.38.080; Ord. No. 68604, § 15, 3-16-2010.)

20.38.090 Gasoline, oil, salt water and other liquids.

No person shall pour or spill, or permit to drip upon any asphalt or bituminous macadam pavement laid on any street or alley or public place in the City, any kerosene, benzene, gasoline or other similar oil or oily substance or liquid, or salt or salt water. (1994 C., § 20.38.090; Ord. No. 68604, § 15, 3-16-2010.)

20.38.100 Oil wagons and tanks.

All oil delivery wagons or tanks shall have securely fastened under the taps or faucets thereunto attached, an absolutely oil- or water-tight, zinc-lined box or tray, and in filling any measure or other vessel from such taps or faucets, the measures or other vessels must be held so that any drip or overflow shall flow into the box or tray, and in removing the same from over the asphalt or bituminous macadam pavement, no drip or overflow from the measure or other vessel shall be permitted to fall upon the pavement, and no receptacle for holding oil shall be placed on the asphalt or bituminous macadam pavement. (1994 C., § 20.38.100; Ord. No. 68604, § 15, 3-16-2010.)

20.38.110 Vehicles using oils.

All automobiles and autocycles and all other vehicles using kerosene, benzene, gasoline or other similar oils, shall be provided with a pan or pans or other efficient receptacles so that no drip or overflow shall fall upon the asphalt or bituminous macadam pavement. (1994 C., § 20.38.110; Ord. No. 68604, § 15, 3-16-2010.)

20.38.120 Salt or salt water from ice cream vehicles.

All vehicles delivering, hauling or handling ice cream shall haul away and not deposit or throw upon any asphalt or bituminous macadam pavement any salt water or salt nor shall they deposit upon the pavement

any receptacles which contain salt or salt water. (1994 C., § 20.38.120; Ord. No. 68604, § 15, 3-16-2010.)

20.38.130 Licensing certain vehicles.

It shall be the duty of the License Collector to refuse to issue a license for oil delivery wagons, tanks, automobiles, autocycles and other vehicles using or transporting kerosene, benzene, gasoline or other similar oils, unless the provisions of Sections 20.38.090—20.38.110 are complied with. (1994 C., § 20.38.130; Ord. No. 68604, § 15, 3-16-2010.)

20.38.140 Breaking or removal of danger signals.

Any unauthorized person who shall remove, break or extinguish any lantern or danger signal, which has been placed on any street or alley to protect persons against accidents, shall be deemed guilty of a misdemeanor. (1994 C., § 20.38.140; Ord. No. 68604, § 15, 3-16-2010.)

20.38.150 Signposts, lanterns and clocks.

No signpost, lantern or clock shall be constructed or maintained in any public street, highway or alley without a permit from the Board of Public Service who shall impose reasonable and general regulations governing the construction and maintenance. (1994 C., § 20.38.150; Ord. No. 68604, § 15, 3-16-2010.)

20.38.160 Playing ball games.

Any person who shall play a game of ball upon any public highway, street or alley, shall be guilty of a misdemeanor. (1994 C., § 20.38.160; Ord. No. 68604, § 15, 3-16-2010.)

20.38.170 Flying kites or playing in streets.

Any person who shall, in any highway or thoroughfare of this City, fly a kite, or use any sport or exercise likely to scare horses, injure passengers or embarrass the passage of vehicles, shall be guilty of a misdemeanor. (1994 C., § 20.38.170; Ord. No. 68604, § 15, 3-16-2010.)

Chapter 20.40

DANGEROUS EXCAVATIONS

Sections:

20.40.010 Fencing—Filling.
20.40.020 Notice to owner.
20.40.030 Fencing by City.
20.40.040 Expenses incurred by City.

20.40.010 Fencing—Filling.

All holes, depressions, excavations or other dangerous places within the City that are below the natural or artificial grades of the surrounding or adjacent street, shall be properly enclosed with fences or walls or be plated or filled up, so as to prevent persons and animals from falling into them. (1994 C., § 20.40.010; Ord. No. 68604, § 16, 3-16-2010.)

20.40.020 Notice to owner.

The Director of Streets shall notify the owners or occupants of premises on which such dangerous places exist to cause fences or walls to be built around them or to cause the same to be filled up, within such period as he shall deem the exigencies of the case may require. In case of failure to comply by any of the owners or occupants of such premises, after the notification required has been given, then they shall be guilty of a misdemeanor. (1994 C., § 20.40.020; Ord. No. 68604, § 16, 3-16-2010.)

20.40.030 Fencing by City.

Whenever the owner or occupant under the provisions of Section 20.40.020 cannot be found, then the Director of Streets shall cause such dangerous places to be fenced in. (1994 C., § 20.40.030; Ord. No. 68604, § 16, 3-16-2010.)

20.40.040 Expenses incurred by City.

The expense incurred by the Department of Streets in doing the work mentioned in this chapter shall be charged to and paid out of appropriation for streets and alleys. (1994 C., § 20.40.040; Ord. No. 68604, § 16, 3-16-2010.)

Chapter 20.42

PRIVATE BRIDGES

Sections:

20.42.010 Clearance signs.
20.42.020 Inspection certificates—Required.
20.42.030 Inspection certificates—Closing bridge.
20.42.040 Inspection certificates—Due dates.

20.42.010 Clearance signs.

By June 1, 1969, owners of private bridges vertically clearing and traversing roadways of public highways, streets and alleys in the City, having a maximum vertical clearance from the underside of the bridge to

the nearest surface of the roadway laying beneath such bridge of less than sixteen feet, shall give warning of the actual clearance by clearly marking on each side of the bridge perpendicular to the highway, street or alley, the vertical distance from the underside to the surface of the roadway at its minimum distance, in feet and inches, and the markings shall conform in all details to specifications adopted by the Director of Streets, pursuant to the requirements hereof. (1994 C., § 20.42.010; Ord. No. 68604, § 17, 3-16-2010.)

20.42.020 Inspection certificates—Required.

The owners of all bridges approaching the City shall furnish the Director of Streets with two- and five-year certificates of safety inspection; the certificates of inspection shall be prepared in substantial compliance with Instructional Memorandum 40-1-68, 32-40, issued March 12, 1968, published by the Bureau of Public Roads and the Informational Guide for Inspection of Highway Bridges, March 1968, published by the Bureau of Public Roads, and any supplements thereto. (1994 C., § 20.42.020; Ord. No. 68604, § 17, 3-16-2010.)

20.42.030 Inspection certificates—Closing bridge.

The Director of Streets may cause any of the bridges to be closed if the inspection certificate is not furnished within one month of the date due or if the necessary repairs, which are indicated by the inspection, are not completed within six months of their discovery. (1994 C., § 20.42.030; Ord. No. 68604, § 17, 3-16-2010.)

20.42.040 Inspection certificates—Due dates.

The first two-year inspection report shall be furnished to the Director of Streets by January 1, 1969, and the first five-year inspection report shall be due three years thereafter on January 1, 1972. (1994 C., § 20.42.040; Ord. No. 68604, § 17, 3-16-2010.)

Chapter 20.46

PERMITS FOR USE

Sections:

20.46.010	**Imposition and collection of permit fees—Exemptions.**
20.46.020	**Exemptions.**
20.46.030	**Penalty for no permit.**

20.46.010 Imposition and collection of permit fees—Exemptions.

The Director of Streets is hereby authorized and directed to impose and collect the following permit fees:

A. For each transportation of equipment permit: twenty-five dollars ($25.00).

B. For each parking exempting permit: twenty dollars ($20.00) per day per 25 feet where no parking meters exist. Where parking meters exist: twenty dollars ($20.00) per day.

C. Street, sidewalk or alley blocking permit.

1. Nonresidential Areas. For each street, curb lane only, sidewalk, or alley blocking permit in a nonresidential area the fee shall be twenty dollars ($20.00) per day per block. The permit fee shall be thirty dollars ($30.00) per day, per block, for each additional street lane in a nonresidential area. Alleys shall not be blocked on trash pickup days.

2. High Volume Area: As located on City Arterials or with in the downtown area (generally bounded by Jefferson to the west, Washington to the north, Choteau to the south, and Lenor K. Sullivan to the east). The blocking permit shall be thirty-five dollars ($35.00) per day per block for a parking lane and fifty dollars ($50.00) per day per block for a traffic lane. For each sidewalk, the blocking permit shall be thirty-five dollars ($35.00) per day per block.

3. Low Volume Area: As located on City streets not included in the High Volume Areas as set forth in A. of this Section, the blocking permit shall be twenty dollars ($20.00) per day per block for a parking lane and thirty dollars ($30.00) per day per block for a traffic lane. For each sidewalk, the blocking permit shall be twenty dollars ($20.00) per day per block.

4. Blocking permits for a storage container shall be issued for one week only and may obtain an extension with the approval of the Director of Streets. The permit fee shall be forty-five dollars ($45.00) per week in a High Volume Area and twenty-five dollars ($25.00), as set forth in this.

5. A blocking permit for a sidewalk shall require justification for the temporary closure of a sidewalk to be approved by the Director of Streets. If warranted, the closure of the sidewalk shall include a traffic control plan submitted by the permit applicant which must meet the satisfaction of the Director of Streets that identifies mobility accommodations for pedestrians of all abilities and range of mobility, all mobility assis-

tance devices and bicyclists, through or around a work zone that are safe and do not result in unnecessary delays. Guidance for traffic control plan requirements known as The City of St. Louis Streets Department Traffic Control Plan are attached and will also be made available at the Street Department. Guidance is subject to change from time to time at the discretion of the Director of Streets after seeking advisement from the St. Louis Community Mobility Committee.

D. For each parade permit: one hundred dollars ($100.00); except for parades in residential areas.

E. For each driveway construction permit the fee shall be one hundred dollars ($100.00) per driveway per commercial driveway; fifty dollars ($50.00) per residential driveway. For each driveway reconstruction permit, the fee shall be fifty dollars ($50.00) per commercial driveway; twenty-five dollars per residential driveway.

F. For each sidewalk construction permit in residential zoning areas: twenty-five dollars ($25.00).

G. For all other sidewalk construction permits (other than residential zoning areas): fifty dollars ($50.00). (1994 C., § 20.46.010; Ord. No. 71157, § 1, 5-7-2020; Ord. No. 68604, § 18, 3-16-2010.)

20.46.020 Exemptions.

Nonprofit, charitable or philanthropic organizations shall not be required to pay fees for parade, festival and parking permits. The blocking of any streets or alleys where vacations are pending shall be without fee. (1994 C., § 20.46.020; Ord. No. 68604, § 18, 3-16-2010.)

20.46.030 Penalty for no permit.

In case any work for which a permit is required by this title is started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be doubled for the first offense and tripled for the second offense, but the doubling and tripling of the fees shall not exceed five hundred dollars ($500.00) for each offense. The payment of said doubled or tripled fee shall not relieve any persons or entity from fully complying with the requirements of this title for performance or execution of the work, nor from other penalties prescribed by law. If a person and/or entity fails to obtain a permit as required by this title more than two times, then the penalty shall be five hundred dollars per day and each day that work is performed without a permit shall constitute a separate offense. (1994 C., § 20.46.030; Ord. No. 68604, § 18, 3-16-2010.)

Chapter 20.50

ABATEMENT OF DANGEROUS CONDITIONS

Sections:

20.50.010 Barricades—Investigation.
20.50.020 Notice to owner.
20.50.030 Repair by City.
20.50.040 Contracts.
20.50.050 Costs.
20.50.060 Owner's duty.
20.50.070 Fund—Created.
20.50.080 Fund—Use.
20.50.090 Penalty for violation.

20.50.010 Barricades—Investigation.

In the event it is determined by the Director of Streets that a hole, depression, cave-in or other similar condition in a street or alley causes the street or alley to be in such condition as to constitute an immediate danger to the lives and property of the citizens of St. Louis and a hazard to public safety, then the Director shall cause fences, walls, plates, or barricades to be placed around the hole, depression, cave-in or other similar condition and shall immediately cause an investigation to be made to determine the cause of the dangerous condition. (1994 C., § 20.50.010; Ord. No. 68604, § 19, 3-16-2010.)

20.50.020 Notice to owner.

In the event the Director of Streets determines that the condition described in Section 20.50.010 is caused by a defective or faulty private sewer lateral and the property is not eligible for the sewer lateral repair program, then the Director will notify, in writing, the owner of the premises served by the private sewer lateral to make the repairs as are necessary to abate the defective or faulty condition which causes the hole, depression, cave-in or other similar condition in a street or alley; or to appear before the Director at a time and place specified within five days after notification in order to show cause why the owner should not be required to make repairs. (1994 C., § 20.50.020; Ord. No. 68604, § 19, 3-16-2010.)

20.50.030 Repair by City.

In the event the owner does not cause the private sewer lateral to be repaired and made safe within five days and does not appear before the Director of Streets to show cause why he should not be so required, then

the Director of Streets shall cause the same to be repaired and the expenses incurred as a result thereof shall be paid out of the revolving fund created in Section 20.50.070. (1994 C., § 20.50.030; Ord. No. 68604, § 19, 3-16-2010.)

20.50.040 Contracts.

The Director of Streets is authorized to cause repairs to be made by employees of the Street Department or any other City employees qualified to perform the repairs. In the event the Metropolitan St. Louis Sewer District has available personnel who are qualified, the Director may make arrangements for the use of personnel as are agreeable to the Director and Metropolitan St. Louis Sewer District. In the event the Director determines that the above sources of manpower and equipment are unavailable or inadequate, then he may let for bid or otherwise award contracts with the approval of the Comptroller to private firms

qualified to perform repairs to private sewer laterals to abate the dangerous condition in the street or alley. The Comptroller is authorized and directed to draw his warrant upon the fund established in this chapter upon the written request of the Director of Streets. (1994 C., § 20.50.040; Ord. No. 68604, § 19, 3-16-2010.)

20.50.050 Costs.

The Director of Streets shall notify in writing the owner of the premises of the amount of the said costs and that he is responsible for same. The owner shall make payment thereof within thirty days after the notification. In the event the owner fails to make a full payment of the costs within the thirty days or make other suitable arrangements for the payment thereof acceptable to the Comptroller, then the Comptroller shall notify the Law Department. The Law Department shall take appropriate legal steps to obtain a final judgment in the amount of the cost with interest against the owner and shall take all further steps necessary to obtain full and complete payment of the judgment and any interest thereon. (1994 C., § 20.50.050; Ord. No. 68604, § 19, 3-16-2010.)

20.50.060 Owner's duty.

No person who is the owner or occupant of a premises shall allow the private sewer lateral serving the premises to be in such condition that the condition of the sewer lateral causes holes, depressions, cave-ins or other dangerous conditions to exist in a street or alley in the City. (1994 C., § 20.50.060; Ord. No. 68604, § 19, 3-16-2010.)

20.50.070 Fund—Created.

There is created a revolving fund to be known as the "Private Sewer Repair Fund." The moneys in the fund are to be kept apart from any and all other moneys of the City. The purpose of the Private Sewer Repair Fund shall be to enable the City to repair, cause to be repaired and do all other things necessary with respect to private sewer laterals which are in such condition as to cause holes, depressions, cave-ins and other dangerous conditions to exist in a street or alley in the City. (1994 C., § 20.50.070; Ord. No. 68604, § 19, 3-16-2010.)

20.50.080 Fund—Use.

All moneys collected and paid to the City in pursuance of the terms and conditions of this chapter shall be deposited in the private sewer repair fund and shall be used only for the purposes set forth in this chapter. (1994 C., § 20.50.080; Ord. No. 68604, § 19, 3-16-2010.)

20.50.090 Penalty for violation.

Each person convicted of a violation of this chapter shall be punished by a fine of not less than five dollars nor more than five hundred dollars or by imprisonment for not more than ninety days or by both fine and imprisonment. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 20.50.090; Ord. No. 68604, § 19, 3-16-2010.)

Chapter 20.51

BENCHES AND SHELTERS

Sections:

20.51.010 Definitions.
20.51.020 Permit—Required.
20.51.030 Application for permit.
20.51.040 Conditions for permit.
20.51.050 Standards for maintenance and installation.
20.51.060 Location and placement.
20.51.070 Violations.
20.51.080 Appeals.
20.51.090 Penalty for violation.

20.51.010 Definitions.

For purposes of this chapter, the following terms and words shall have the meaning herein given to them:

A. *Distributor* shall mean the person responsible for placing and maintaining a bench or shelter in a public right-of-way.

B. *Parkway* means that area between the sidewalk and the curb of any street, and where there is no sidewalk that area between the edge of the roadway and property line adjacent thereto. Parkway shall also include any area within a roadway that is not open to vehicular travel.

C. *Roadway* means that portion of a street improved, designed, or ordinarily used for vehicular travel.

D. *Sidewalk* means all that area dedicated to pedestrian public use for public street purposes and shall include, but not be limited to, areas abutting roadways, parkways and alleys. (1994 C., § 20.51.010; Ord. No. 68604, § 20, 3-16-2010.)

20.51.020 Permit—Required.

It shall be unlawful for any person, firm or corporation to erect, place, maintain or operate, on any public street or sidewalk, or in any other public right-of-way or place, in the City of St. Louis any bench or shelter without first having obtained a permit from the Board of Public Service specifying the exact location of such bench(es) or shelter(s). One permit may be issued to include any number of benches or shelter(s). (1994 C., § 20.51.020; Ord. No. 68604, § 20, 3-16-2010.)

20.51.030 Application for permit.

Application for such permit shall be made, in writing, to the Director of Streets upon such form as shall be provided by him, and shall contain the name, address and telephone number of the applicant and of the distributor, the proposed specific location of said benches or shelters, and shall be signed by the applicant. A letter of support from the Alderman of the ward in which the bench or shelter will be located shall accompany the original application; otherwise the application shall not be accepted. This section shall not apply to benches or shelters that have been erected pursuant to a permit issued by the Board of Public Service. (1994 C., § 20.51.030; Ord. No. 68604, § 20, 3-16-2010.)

20.51.040 Conditions for permit.

A. As an express condition of the acceptance of such permit, the permittee thereby agrees to indemnify and save harmless the City, its officers, directors, and employees against any loss or liability or damage, including expenses and costs for bodily or personal injury, and for property damage sustained by any person as the result of the installation, use or maintenance of a bench or shelter within the City of St. Louis. This section shall not be construed as relieving any person, firm or corporation from obtaining a building permit for construction or erection of any shelter on the public right-of-way.

B. Insurance. A certificate of insurance covering each person up to $100,000.00 and each accident up to $500,000.00 and $50,000.00 property damage approved by the City Counselor as to form and by the Comptroller as to surety and naming the City of St. Louis as a co-insured shall be filed with the Board of Public Service before the permit is issued. Said certificate of insurance shall be kept in effect during the entire time the bench or shelter is on the public right-of-way. Such certificate shall be so conditioned as to require thirty (30) days' notification before cancellation.

C. Permits shall be issued for the installation of benches and shelters with inspection which shall take place no later than twenty-one (21) days after the application has been filed. A ten dollar ($10.00) inspection fee per bench or shelter shall accompany each permit application.

D. Such permits shall be valid for three (3) years and shall be renewable pursuant to the procedure for original applications referred to in this chapter.

E. Stickers showing the permit number shall be issued by the Board of Public Service with the permit and must be displayed on the back of each bench and shelter at all times. (1994 C., § 20.51.040; Ord. No. 68604, § 20, 3-16-2010.)

20.51.050 Standards for maintenance and installation.

Any bench or shelter which in whole or in part rests upon, in or over any public sidewalk or parkway, shall comply with the following standards:

A. No new bench, except for replacement of existing benches, shall exceed forty-eight (48) inches in height, seventy-two (72) inches in width, or twenty-eight (28) inches in depth.

B. No shelter shall exceed the height, width and depth approved by the Director of Streets.

C. Notwithstanding the provisions of any other ordinance, benches or shelters may be used to advertise services or products if such benches are located within F, G, H, J or K zoning districts as defined and described in Title 26 of the Revised Code of the City of St. Louis.

D. Each bench and shelter shall be maintained in a neat and clean condition and in good repair at all times. Specifically, but without limiting the generality of the foregoing, each bench and shelter shall be serviced and maintained so that:

1. It is reasonably free of dirt and grease.

2. It is reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof.

3. It is reasonably free of rust and corrosion in the visible unpainted metal areas thereon.

4. The clear plastic or glass parts thereof, if any, are unbroken and reasonably free of cracks, dents, blemishes and discoloration.

5. The structural parts thereof are not broken or unduly misshapen.

6. It is not painted with fluorescent, day-glow aircraft visibility or similar paint materials. (1994 C., § 20.51.050; Ord. No. 68604, § 20, 3-16-2010.)

20.51.060 Location and placement.

A. No bench or shelter shall be used or maintained which projects onto, into, or over any part of the roadway of any public street, or which rests, wholly or in part upon, along, or over any portion of the roadway of any public street.

B. No bench or shelter shall be chained, bolted, or otherwise attached to any fixture located in the public right-of-way.

C. Benches may be placed next to each other, provided that no group of benches shall extend for a distance of more than twelve (12) feet.

D. No bench or shelter shall be placed, installed, used or maintained:

1. Within three (3) feet of any marked crosswalk.

2. Within twelve (12) feet of the curb rounding of any unmarked crosswalk.

3. Within five (5) feet of any fire hydrant, fire call box, police call box or other emergency facility.

4. Within five (5) feet of any driveway.

5. Outside an area three (3) feet ahead or fifteen (15) feet to the rear of any sign marking a designated bus stop, except for benches that do not advertise services or products.

6. At any location whereby the clear space for the passageway of pedestrians is reduced to less than six (6) feet.

7. Within three (3) feet of or on any public area improved with lawn, flowers, shrubs, trees or other landscaping.

8. Within one hundred (100) feet of any other benches or shelters on the same side of the street in the same block, except as provided in Subsection C of this section.

9. Within any designated historic district or located within three hundred feet (300) of any designated historic district or any improvement, site, street, or right-of-way which is designated a landmark, or any public park or public building as defined in Title 24 of the Revised Code of the City of St. Louis, without the written approval of the Heritage and Urban Design Commissioner.

10. On any handicap access ramp.

E. No new bench, except for replacement benches, shall be located within the Central Business District bounded by Chouteau Avenue on the south, Jefferson Avenue on the west, Cass Avenue on the north and the Mississippi River on the east. (1994 C., § 20.51.060; Ord. No. 68604, § 20, 3-16-2010.)

20.51.070 Violations.

Upon determination by the Director of Streets that a bench or shelter has been installed, used or maintained in violation of the provisions of this chapter, or a complaint has been filed by the abutting property owner, an order to correct the offending condition or complaint will be issued to the distributor of the bench or shelter. The Director of Streets, or his delegate, shall notify said distributor by first class mail, with postage prepaid, of the location of the bench and the alleged violations and complaints. The order shall specifically describe the offending condition, suggest actions necessary to correct the condition, and inform the distributor of the right to appeal. Failure to properly correct the offending condition with ten (10) days (excluding Saturdays, Sundays, and legal holidays) after the mailing date of the order; or to appeal the order within ten (10) days after the mailing date; or to keep current with the office of the Director of Streets, the name, address and telephone number of the distributor; shall result in the offending bench or shelter being summarily removed and processed as unclaimed property. If the offending bench or shelter is not properly permitted under provisions of this chapter it shall be removed immediately and processed as unclaimed property. An impound fee, which shall be measured by the City's cost and expense of impounding, shall be assessed against each bench or shelter summarily removed. The Director of Streets shall cause inspection to be made of the corrected condition or of a bench or shelter reinstalled after removal under this section. The distributor of said bench or shelter shall be charged a $10.00 inspection fee for each bench so inspected. (1994 C., § 20.51.070; Ord. No. 68604, § 20, 3-16-2010.)

20.51.080 Appeals.

Any person or entity aggrieved by a finding, determination, notice, order or action taken under the provisions of this chapter by the Director of Streets may appeal and, in the case of an applicant, shall be appraised of his right to appeal to the Board of Public Service. An appeal by an applicant must be perfected within ten (10) days after the mailing date of notice of any protested decision or action by filing with the office of the Director of Streets a letter of appeal briefly stating therein the basis for such appeal. An appeal by any other aggrieved person or entity must be perfected within thirty (30) days after the erection of a bench or shelter by filing with the office of the Director of Streets

a letter of appeal briefly stating therein the basis for such appeal. A hearing shall be held on a date no more than thirty (30) days after receipt of the letter of appeal. The appellant and distributor, if he is not the appellant, shall be given at least five (5) days' notice of the time and place of the hearing. The Board of Public Service shall give the appellant and any other interested party a reasonable opportunity to be heard, in order to show cause why the determination of the Director of Streets should not be upheld. At the conclusion of the hearing, the Board shall make a final and conclusive decision. This decision shall be immediately appealable to a court of competent jurisdiction. (1994 C., § 20.51.080; Ord. No. 68604, § 20, 3-16-2010.)

20.51.090 Penalty for violation.

Any person, firm, or corporation violating this chapter shall upon conviction thereof be fined not less than one dollar or more than five hundred dollars. Each day a violation shall continue shall constitute a separate offense. (1994 C., § 20.51.090; Ord. No. 68604, § 20, 3-16-2010.)

Chapter 20.52

STREET LIGHTING

Sections:

20.52.010 On private streets.

20.52.020 Lighting of utility easements.

20.52.010 On private streets.

The Comptroller and the Director of Public Utilities are authorized to contract to furnish, operate and maintain street lighting along private streets upon annual payment in advance of the cost to the City of maintenance, operation and remaining undepreciated costs. (1994 C., § 20.52.010; Ord. No. 68604, § 21, 3-16-2010.)

20.52.020 Lighting of utility easements.

The Department of Public Utilities is authorized and directed to provide lighting of utility easements throughout the City which such lighting installations are to conform to the same design criteria as that established for the City alley lighting program. Said department shall be authorized to let contracts to accomplish this program through the Board of Public Service or in such manner as shall be authorized under the Charter for such program. The utility easement lighting program shall not be extended to include those public places which have been vacated for public surface rights for vehicle, equestrian, and pedestrian travel as recommended by the Board of Public Service and in accordance with Charter authority and all in conformity with Section 14, Article XXI of the Charter. Funds to pay for such program shall be appropriated from general revenue and be a part of the operating budget for said installation and all other necessary or reasonable expenses related thereto. Continuation of the lighting installation program and the operation of and maintenance of same shall be contingent upon adequate appropriations in the general operating budget of the Department of Public Utilities. (1994 C., § 20.52.020; Ord. No. 68604, § 21, 3-16-2010.)

Chapter 20.53

PORTABLE STORAGE UNITS

Sections:

20.53.010 Definitions.

20.53.020 Permit required—Application—Insurance.

20.53.030 Permit fee.

20.53.040 Duration.

20.53.050 Placement of units.

20.53.060 Festival areas.

20.53.070 Unlawful placement of portable storage units.

20.53.080 Exceptions.

20.53.090 Rules and regulations.

20.53.100 Violations and penalties.

20.53.010 Definitions.

For purposes of this chapter, the following terms shall apply:

"Applicant" shall mean any person, partnership, corporation or other entity who enters into a contract with a portable storage unit vendor for the placement and use of a portable storage unit.

"Portable storage unit" shall mean any container, storage unit, shed-like container or other portable structure that can be or is used for the storage of personal property of any kind and which is located for such purposes outside an enclosed building, other than an accessory building or shed complying with all building codes and land use requirements.

"Portable storage unit vendor" shall mean any person, partnership or corporate entity that leases or rents

portable storage units within the City of St. Louis. (1994 C., § 20.53.010; Ord. No. 68604, § 22, 3-16-2010.)

20.53.020 Permit required—Application—Insurance.

Before placing a portable storage unit within the City of St. Louis, a portable storage unit vendor must submit an application and receive a permit from the Street Department. The application shall contain the name of the portable storage unit vendor, the name of the person(s) to whom the portable storage unit is supplied, whether the person(s) owns, rents, occupies or controls the property, the address at which the portable storage unit will be placed, the delivery date and removal date. A copy of such permit shall be posted on the portable storage unit. Every portable storage unit vendor providing portable storage units within the City of St. Louis shall have on file with the Street Department a current certificate of insurance in an amount of not less than one million dollars ($1,000,000.00) showing the City of St. Louis as an additional insured. (1994 C., § 20.53.020; Ord. No. 68604, § 22, 3-16-2010.)

20.53.030 Permit fee.

If a portable storage unit is to be placed for any part of three (3) calendar days or less, excluding Sunday, the permit fee shall be ten dollars ($10.00). If such portable storage unit is to be placed for more than three (3) calendar days, the fee for such permit shall be twenty-five dollars ($25.00). (1994 C., § 20.53.030; Ord. No. 68604, § 22, 3-16-2010.)

20.53.040 Duration.

A. Permits to place a portable storage unit within a public right-of-way shall be granted for a period of not more than seven (7) calendar days or part thereof. At the expiration of the seven-day period, an applicant may seek a one-time extension of such permit for an additional period of not more than seven (7) calendar days, or part thereof, by submitting an extension application to the Street Department. Extension of a permit shall require an additional twenty-five dollar ($25.00) permit fee.

B. Permits to place a portable storage unit on private property shall be granted for a period of not more than thirty (30) calendar days or part thereof. It shall be a violation of this chapter to permit any portable storage unit to remain on private property for more than thirty (30) days or part thereof.

C. The Street Department shall not issue more than two (2) portable storage unit permits to the same applicant for the same address within any twelve (12) month period. Such permits shall not be granted so as to be allowed to run either concurrently or consecutively. (1994 C., § 20.53.040; Ord. No. 68604, § 22, 3-16-2010.)

20.53.050 Placement of units.

Portable storage unit(s) placed pursuant to a permit issued under the provisions of this chapter shall not exceed a footprint of one hundred thirty (130) square feet and twenty-two (22) linear feet. (1994 C., § 20.53.050; Ord. No. 68604, § 22, 3-16-2010.)

20.53.060 Festival areas.

The Street Department shall not issue a permit for placement of a portable storage unit within the public right-of-way for any area designated by permit as a festival area or parade area during the duration of such festival or parade permit unless the holder of the festival area or parade area permit is the applicant for the portable storage unit permit or has consented in writing to the issuance of the portable storage unit permit. (1994 C., § 20.53.060; Ord. No. 68604, § 22, 3-16-2010.)

20.53.070 Unlawful placement of portable storage units.

It shall be a violation of this chapter for any person to park, place or cause to be parked or placed a portable storage unit without first obtaining a permit under the provisions of this chapter.

It shall be a violation of this chapter to park or place a portable storage unit in the front yard of a residential property, or to park or place a portable storage unit upon any sidewalk, alley or designated fire lane or in such a manner as to block or interfere with access to a shared garage, refuse collection, handicapped parking areas or off-street parking areas. (1994 C., § 20.53.070; Ord. No. 68604, § 22, 3-16-2010.)

20.53.080 Exceptions.

The provisions of this chapter shall not apply to the use or placement of construction dumpsters or trailers on property in association with ongoing construction activities carried out pursuant to a valid building permit, nor to the placement of accessory buildings or storage sheds complying with all building codes and land use requirements. (1994 C., § 20.53.080; Ord. No. 68604, § 22, 3-16-2010.)

20.53.090 Rules and regulations.

The Director of Streets is authorized to promulgate rules and regulations for the implementation and administration of the provisions of this chapter. (1994 C., § 20.53.090; Ord. No. 68604, § 22, 3-16-2010.)

20.53.100 Violations and penalties.

Any portable storage unit vendor who shall be found guilty of violating any of the provisions of this chapter shall be assessed a fine of not less than twenty-five dollars ($25.00). Each day that such violation continues shall constitute a separate violation. (1994 C., § 20.53.100; Ord. No. 68604, § 22, 3-16-2010.)

Chapter 20.54

TRASH CONTAINERS

Sections:

20.54.010 Privilege to highest bidder.
20.54.020 Term.
20.54.030 Container specifications.
20.54.040 Advertising on containers.
20.54.050 Placement.
20.54.060 Condition of containers.
20.54.070 Indemnity.
20.54.080 Insurance.

20.54.010 Privilege to highest bidder.

The Board of Public Service is authorized to let to the highest and best bidder the exclusive privilege of supplying and placing on the public sidewalk areas of the City, trash receptacles or containers for the collection and temporary deposit of waste paper, trash or other litter as may be upon the public streets or sidewalks, and for the placing of private advertisements on the containers or receptacles in accordance with this chapter. (1994 C., § 20.54.010; Ord. No. 68604, § 23, 3-16-2010.)

20.54.020 Term.

The agreement shall be for a term not to exceed five years. (1994 C., § 20.54.020; Ord. No. 68604, § 23, 3-16-2010.)

20.54.030 Container specifications.

The size, design and color of the containers shall be subject to the approval of the Board of Public Service. (1994 C., § 20.54.030; Ord. No. 68604, § 23, 3-16-2010.)

20.54.040 Advertising on containers.

The type of advertising to be placed on the containers shall be subject to the approval of the Board of Public Service. (1994 C., § 20.54.040; Ord. No. 68604, § 23, 3-16-2010.)

20.54.050 Placement.

The placement of containers may not interfere with the safe and efficient passage of pedestrians and may not impede pedestrians' access to or use of traffic control devices. (1994 C., § 20.54.050; Ord. No. 68604, § 23, 3-16-2010.)

20.54.060 Condition of containers.

The grantee shall maintain the containers in a safe and clean condition at all times. Damaged or disfigured containers shall be repaired or replaced immediately upon notification or discovery of damage or disfigurement. (1994 C., § 20.54.060; Ord. No. 68604, § 23, 3-16-2010.)

20.54.070 Indemnity.

The holder of any permit issued under the terms of this chapter shall always release and indemnify, defend and save harmless the City, its officers, agents, and employees from and against any and all claims, actions, causes of action, demands, judgments, costs, expenses, and all damages of every kind and nature incurred by or injuring any person whatsoever predicated upon injury to or death of any person, or loss of or damage to property, public or private, or whatever ownership, or damage to business, provided the injury, death, loss, or damage shall arise out of or be connected directly or indirectly with the exercise of any right or privilege granted by the permit. (1994 C., § 20.54.070; Ord. No. 68604, § 23, 3-16-2010.)

20.54.080 Insurance.

No permit issued shall be effective until the permittee, at his own cost and expense and without cost to the City, shall procure and maintain a liability policy or policies, including public liability and property damage on an occurrence basis, covering his operations under such permit, with bodily injury limit of not less than three hundred thousand dollars as to any one person and five hundred thousand dollars as to any one occurrence, and with property damage of not less than one hundred thousand dollars for any one occurrence. The insurance coverage constitutes a minimum requirement and shall in no way be deemed to limit or lessen the liability of the permittee under the terms of the permit.

All of the insurance coverage so required shall be written in a form and by a company or companies approved by the City Counselor and authorized to do business in the state. A certified copy or certified copies of all insurance policies shall be filed with the City Counselor and Board of Public Service and each policy shall contain a statement therein or endorsement thereon that it will not be cancelled or materially changed or altered without at least thirty days' prior written notice, by registered or certified mail, to the City Counselor. All insurance policies shall be specially endorsed to include all liability assumed by the permittee and the City shall be named a co-insured. (1994 C., § 20.54.080; Ord. No. 68604, § 23, 3-16-2010.)

Chapter 20.55

RESERVED

Editor's Note:

Ord. No. 69538, § 1, adopted Oct. 11, 2013, repealed Ch. 20.55, §§ 20.55.010—20.55.090, which pertained to street performers and derived from Ord. No. 68604, § 24, adopted March 16, 2010, and Ord. No. 69167, § 1, adopted June 5, 2012.

Chapter 20.56

RESERVED

Editor's Note:

Ord. No. 69538, § 1, adopted Oct. 11, 2013, repealed Ch. 20.56, § 20.56.017, which pertained to street merchants and performers and derived from Ord. No. 68604, § 25, adopted March 16, 2010.

Chapter 20.58

CONDEMNATION PROCEEDINGS

Sections:

20.58.010 **Notice and place of hearings.**
20.58.020 **Partial reports.**
20.58.030 **Taking possession.**
20.58.040 **Final report to include partial reports.**
20.58.050 **Additional or supplemental petitions.**
20.58.060 **Commissioners, sessions.**
20.58.070 **Comptroller duties.**
20.58.080 **Payment of benefits—Execution sales.**
20.58.090 **Satisfaction of judgment.**
20.58.100 **Compensation of Commissioners.**
20.58.110 **Clerical work.**
20.58.120 **Sale of condemned buildings and other material obstructions.**
20.58.130 **Revolving fund.**

20.58.010 Notice and place of hearings.

It shall be the duty of the City Counselor, jointly with the Commissioners appointed by the Circuit Court in any condemnation proceedings, to publish the notice required by the Charter to be published by the Commissioners relative to their hearings. The hearings of the Commissioners shall be conducted at the City Hall in a room or office of the Law Department by the City Counselor set apart for use by the Commissioners. (1994 C., § 20.58.010; Ord. No. 68604, § 2, 3-16-2010.)

20.58.020 Partial reports.

In all condemnation suits brought by the City, that are now pending, and in all suits that may hereafter be brought, the Commissioners appointed by the court may, either upon the request of the judge in whose division the suit may be pending, or of their own motion, file partial reports covering their assessments of damages, or of benefits, or of both, up to the time when the report may be filed. (1994 C., § 20.58.020; Ord. No. 68604, § 2, 3-16-2010.)

20.58.030 Taking possession.

At any time after a partial report shall have been filed by the Commissioners, the City may pay into court the amount of damages assessed, less benefits, if any, and thereupon it shall be entitled to take possession of and damage the property, assuming the lien of all general taxes not then payable on property actually appropriated. (1994 C., § 20.58.030; Ord. No. 68604, § 2, 3-16-2010.)

20.58.040 Final report to include partial reports.

All partial reports authorized by Sections 20.58.020 and 20.58.030 shall be embodied in the final report made by the Commissioners, and any party interested may file exceptions in writing within twenty days from the filing of the final report. Parties shall have the right to file exceptions at any time after any partial report may have been filed. (1994 C., § 20.58.040; Ord. No. 68604, § 2, 3-16-2010.)

20.58.050 Additional or supplemental petitions.

In any action now pending or hereafter instituted under Article XXI of the Charter, there may, from time to time, before final judgment, be filed therein by the

City an additional and supplemental petition within the time and in a form as required by the Charter, pursuant to and in conformity with and after any ordinance, duly recommended by the Board of Public Service, for amendment of the public use improvement or work defined, designated or proposed by prior ordinance authorizing the action, whether the same be an amendment to increase or decrease, or otherwise alter, the taking or damaging of any properties, or of estates, therein previously affected, or an amendment or omission of any properties or estates, or for addition of any properties or estates not theretofore affected, or change, increase or addition of the burdens for public use. Notice of the filing of the amended or supplemental petition, with a description of the property to be taken or damaged, as amended, shall be filed and recorded, that notice in the cause shall be given by summons, or otherwise, as provided by the Charter, to any new parties defendant, owners of any property or estate not theretofore affected and to be taken or damaged upon the amendments of and for public use, and that otherwise the proceedings and orders shall be had in the cause appropriate to the status of the cause and to the amendment of the public improvements, all consistent with the provisions of the Charter. For any increased or additional taking the value of the damage to the private property shall be ascertained as of the date the amending ordinance became effective. (1994 C., § 20.58.050; Ord. No. 68604, § 2, 3-16-2010.)

20.58.060 Commissioners, sessions.

The Commissioners in all proceedings for opening of any street or alley shall hold their sessions at the City Hall, and each adjournment shall be to a day certain which shall be noted on the record and the case set upon the session docket for that day, and the session docket shall be opened to the inspection of the public. (1994 C., § 20.58.060; Ord. No. 68604, § 2, 3-16-2010.)

20.58.070 Comptroller duties.

After final action is taken by the Circuit Court on the report of the Commissioners in any condemnation proceedings under the Charter, and has been certified to the Comptroller, the latter shall issue to any persons wishing to pay any judgment for benefits a statement showing the amount due, and the Treasurer upon receipt of payment of any such judgment shall execute triplicate receipts issued by the Comptroller, one to the party paying, one to the Comptroller, and one to the City Counselor, and the payments shall be credited to the fund appropriated by ordinance for the condemnation proceeding. (1994 C., § 20.58.070; Ord. No. 68604, § 2, 3-16-2010.)

20.58.080 Payment of benefits—Execution sales.

The benefits against property adjudged by the final action of the Circuit Court in condemnation proceedings shall be paid into the City Treasury, together with interest added to the principal of the judgment from date of judgment until so paid as follows:

A. If paid within thirty days after the ordinance appropriating the money to pay damages assessed by the final action takes effect, shall be with interest at the rate of one percent per year.

B. If paid after thirty days after date of judgment, then at the rate of six percent per year.

At all execution sales for the enforcement of payment of judgments, the Comptroller or someone in the Comptroller's Office, designated by the Comptroller, is authorized on behalf and in the name of the City to protect the City's interest by bidding for the property to be sold, any amount not to exceed the judgment, interest, costs and expenses. (1994 C., § 20.58.080; Ord. No. 68604, § 2, 3-16-2010.)

20.58.090 Satisfaction of judgment.

Upon delivery of any receipt described in Section 20.58.070 to the City Counselor, duly executed by the Treasurer, the City Counselor shall acknowledge satisfaction of the judgment insofar as the same affects the property against which the judgment for benefits so assessed has been paid as evidenced by the receipt. (1994 C., § 20.58.090; Ord. No. 68604, § 2, 3-16-2010.)

20.58.100 Compensation of Commissioners.

A minimum of two hours' service or attendance at a hearing by the Commissioners in condemnation proceedings per diem shall be necessary to entitle a Commissioner to the compensation prescribed by the Charter. Compensation in one proceeding only shall be due any Commissioner for attendance on any one calendar day. (1994 C., § 20.58.100; Ord. No. 68604, § 2, 3-16-2010.)

20.58.110 Clerical work.

The clerical work of the Commissioners, including writing the report, shall be done and performed by the force employed in the City Counselor's Office. No compensation shall be allowed or paid to any Commis-

sioner for such work, or to any person, whomsoever. (1994 C., § 20.58.110; Ord. No. 68604, § 2, 3-16-2010.)

20.58.120 Sale of condemned buildings and other material obstructions.

In all cases where property, such as buildings, walls, fences, sheds, outhouses or other material obstructions, shall have been taken or condemned in any proceeding for the opening of any public highway, a sale thereof shall be made by the City Marshal, at a public venue, to the highest bidder, for cash, which shall be paid at the time of the sale and deposited in the City Treasury within two days thereafter.

The conditions of the sale shall be that, in the event the property so sold shall not be moved off the public highway within twenty days from the date of sale, the City Marshal shall proceed to sell the property so previously sold, or any portion thereof, again, and the money received at the first sale shall be forfeited to the use of the City, without recourse therefor, either by the purchaser so neglecting to remove same, or his heirs or assigns. (1994 C., § 20.58.120; Ord. No. 68604, § 2, 3-16-2010.)

20.58.130 Revolving fund.

There is created, out of the proceeds of bonds authorized by Ordinance 32496, approved May 29, 1923, and particularly pursuant to subdivision one of section six of such ordinance, a revolving fund to expedite the execution of improvements for the establishment, opening and widening of streets. The amounts hereinafter appropriated, together with any other money hereafter appropriated to the fund shall, upon the recommendation of the City Counselor, be used for the purpose of depositing in court the amount of awards reported by the Commissioners in condemnation proceedings for the establishment, opening and widening of streets as damages suffered by the owners of property who are parties to such proceedings, pending the final judgment in the case, in accordance with the provisions of Section 6 of Article XXI of the Charter. When final appropriation is made for the payment of damages pursuant to final judgment in any cause in which deposit in court has been made from the revolving fund created by this section, the amount so deposited in court shall, from the latter appropriation, be credited and paid back into the revolving fund, subject to be again used in the manner herein provided. (1994 C., § 20.58.130; Ord. No. 68604, § 2, 3-16-2010.)

Title 21

HARBORS AND WHARVES

Prior code history: 1948 C. Chs. 22 and 29

Charter:

Art. I § 1(16) Harbor, wharves and ferries

Art. I § 1(17) Watercourses

Art. XXII § 10 Payment of cost of improvement of wharves

RSMo:

RSMo Ch. 237 (2016) Barges, Ferries and Wharves

The boats of a corporation incorporated in one state, and carrying passengers back and forth across a river to a city in another state, are not taxable under a law taxing boats "within the city." *St. Louis v.*

The Ferry Company, 78 U.S. 424 (1870).

Passenger-carrying excursion vessel—license required for amusement device—license tax not an undue burden on interstate commerce—not in violation of United States Constitution. *City of St. Louis v. Streckfus,* 505 S.W. 2d 70 (Mo. en banc 1974).

Ferry Boat—Mississippi River—liquor license requirement upheld. *Foppiano v. Speed,* 199 U.S. 501, 50 L. Ed. 288 (1905).

McQuillin:

15.34 Ordinances as to wharves

Chapters:

21.04	**General Regulations**
21.08	**Leasing Unimproved Wharves**
21.10	**Port District Rental and Lease Rates**
21.12	**Municipal Quays and Warehouses**
21.16	**Removal of Goods, Encroachments and Obstructions**
21.20	**Landing and Mooring Vessels and Watercraft**
21.24	**Wharfboats, Drydocks, Floats, Piers, Etc.**
21.32	**Enforcement**
21.36	**Port Authority Commission**
21.40	**Wharf Vending District**

Chapter 21.04

GENERAL REGULATIONS

Prior ordinance history: Ord. 51391

City Counselor Ops.: 8911, 9996, 10270, 10295

Sections:

21.04.010	**Application—Supplemental law.**
21.04.020	**Definitions.**
21.04.030	**Building on wharf—Prohibited.**
21.04.040	**Building on wharf—Notice of violation.**
21.04.050	**Damage to wharf.**
21.04.060	**Compliance with orders of the Director of Streets.**
21.04.070	**Public health.**
21.04.080	**Boat livery records.**
21.04.090	**Liability for damages.**

21.04.010 Application—Supplemental law.

The provisions of this title shall be applicable to all vessels and watercraft in the harbor of this City. The provisions of this title shall be construed to supplement United States laws and state laws and regulations when not expressly inconsistent therewith in the harbor where United States and state laws and regulations are applicable. (1960 C., § 290.010; 1994 C., § 21.04.010; Ord. No. 56707, § 1(part), 1974.)

Cases:

Building permit for construction abutting on Mississippi River—planned extension into river—permit refused—City authorized to refuse permit—navigation, commerce and exercise of police power. *State ex rel. Citizens Electric Lighting Company v. Longfellow,* 69 S.W. 374 (Mo. en banc 1902).

A public wharf on a navigable stream connected with the public streets is a "public highway" and governed by the laws governing public highways. *Hafner Mfg. Co. v. City of St. Louis,* 262 Mo. 621, 172 S.W. 28 (1914).

21.04.020 Definitions.

For the purpose of this title:

A. "Aquatic event" means any organized event of limited duration which is duly sanctioned at least seven days in advance by duly constituted authority and which is conducted according to a prearranged schedule.

B. "Authorized emergency vessel" means any authorized vessel or watercraft of the City, City Police Department, City Fire Department, State of Missouri, and the United States government.

C. "Base line" means the base line or western landward harbor line as established by Ordinance 21236.

D. "City" means the City of St. Louis, Missouri.

E. "Diver's flag" means a red flag five units of measurement on the hoist by six units of measurement

on the fly with a white stripe of one unit crossing the red diagonally with the flag having a stiffener. This flag shall only pertain to skin and scuba (self-contained underwater breathing apparatus) diving and shall supplement any nationally recognized diver's flag or marking.

F. "East wharf line" means eastern boundary line or western riverward harbor line as established by Ordinance 21236.

G. "Harbor" means all waters of the Mississippi River or any of its tributaries within the City limits, upon which at any time a vessel or watercraft can be operated.

H. "Master" means the captain, skipper, pilot or any person having charge of any vessel or watercraft.

I. "Obstruction" means any vessel or watercraft or any matter or derelict which may in any way blockade, interfere with, or endanger any vessel or watercraft or impede navigation.

J. "Owner" means the person who has lawful possession of a vessel or watercraft or obstruction by virtue of legal title or equitable interest therein which entitles him to possession.

K. "Person" means any natural persons, associations, copartnerships and corporations, whether acting by themselves or by servant, agent, or employee; the singular number shall when necessary be held to mean and include the plural, and the masculine pronoun to include the feminine.

L. "Pier" means any pier, wharf, dock, float, gridiron or other structure to promote the convenient loading or unloading or other discharge of vessels or watercraft or the repair thereof.

M. "Public wharf" means Front Street and all the lands, riverbanks and beach dedicated, condemned, or belonging to the City for wharf purposes within the City.

N. "Restricted area" means an area that has been marked in accordance with and as authorized by the laws or regulation of the City to be used for or closed to certain designated purposes such as swimming, skin diving, aquatic events and organized public gatherings.

O. "Towboat" means any vessel or watercraft used in towing or pushing another vessel or watercraft or anything other than a vessel or watercraft.

P. "Vessel" means any contrivance one hundred ten feet or more in length overall used or capable of being used as a means of transportation on water.

Q. "Watercraft" means any contrivance less than one hundred ten feet in length overall, used, or capable of being used, as a means of transportation on water. Cribs or piles, shinglebolts, booms of logs, rafts of logs, and rafts of lumber shall not be included within the terms "watercraft" or "vessel" but shall be included within the term "obstruction" when they shall be floating loose and not under control or when under control and obstructing any navigable channel.

R. "Wharf" means all land between the eastern boundary line of the easternmost City blocks and the eastern boundary line of the wharf as described in Ordinance 21236. (1960 C., § 290.020; 1994 C., § 21.04.020; Ord. No. 56707, § 1(part), 1974.)

21.04.030 Building on wharf—Prohibited.

No person shall build or extend any dike, trestle work, elevator or other structure east of the eastern boundary line of the wharf as established by Ordinance 21236. (1960 C., § 290.030; 1994 C., § 21.04.030; Ord. No. 56707, § 1(part), 1974.)

21.04.040 Building on wharf—Notice of violation.

Whenever the Director of Streets or his authorized agent shall find that any person is violating the provision of Section 21.04.030, the owner or agent shall be notified by mail to remove such structure at his own expense within ten days of the mailing of the notice. If the owner or agent cannot be located, a notice shall be posted in the vicinity of such structure.

Failure, neglect or refusal to comply with the notice or posting shall be a misdemeanor. (1960 C., § 290.031; 1994 C., § 21.04.040; Ord. No. 56707, § 1(part), 1974.)

21.04.050 Damage to wharf.

No person shall make an excavation in the public wharf, or take up any paving stones of the improved wharf or otherwise damage the surface thereof without permission of the Director of Streets nor shall any person otherwise damage, destroy or deface any structure, vessel or watercraft in the harbor or on the wharf. (1960 C., § 290.040; 1994 C., § 21.04.050; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9617

21.04.060 Compliance with orders of the Director of Streets.

No person shall fail to obey the directions of the Director of Streets or his authorized agent, in the

exercise of the authority vested in him by this chapter. (1960 C., § 290.050; 1994 C., § 21.04.060; Ord. No. 56707, § 1(part), 1974.)

21.04.070 Public health.

All watercraft and vessels entering or in the harbor shall comply with the applicable health laws and regulations of the City, the United States, and the State of Missouri. (1960 C., § 290.120; 1994 C., § 21.04.070; Ord. No. 56707, § 1(part), 1974.)

21.04.080 Boat livery records.

The owner of every boat livery operating on the Mississippi River within the City harbor shall cause to be kept a record of the name and address of a person or persons hiring any watercraft, the identification number thereof, the departure date, and time, and the expected time of return. The record shall be preserved for at least six months, and shall be made available to the Director of Streets or his authorized agent on request.

Neither the owner of the boat livery, nor his agent or employee shall permit any watercraft to depart from his premises unless it shall have been provided, either by the owner or renter, with the equipment as required by local, state or federal laws pertaining to equipment required aboard vessels and watercraft. (1960 C., § 290.130; 1994 C., § 21.04.080; Ord. No. 56707, § 1(part), 1974.)

21.04.090 Liability for damages.

Nothing in this title shall be construed so as to release any person owning or controlling any vessel, watercraft, pier, obstruction or other structure from any liability for damages, and the safeguards to life and property required in this title shall not be construed as relieving any person from installing and maintaining all other safeguards that may be required by law. (1960 C., § 290.150; 1994 C., § 21.04.090; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.08

LEASING UNIMPROVED WHARVES

Prior ordinance history: Ord. 51391

Editor's Note:

The procedures outlined in this chapter and Ch. 21.12 shall apply only to property, quays and warehouses within the port district owned by the city and not to property, quays and warehouses owned by the port authority.

Cases:

Improper delegation of authority to lease entire wharf—contract for operation of wharf invalid—improper delegation of legislative authority. *Mathews v. City of Alexandria,* 69 Mo. 115 (1878).

Limited right of re-entry—long-term lease held valid. *Belcher Sugar Refining Company v. St. Louis Grain Elevator Company,* 13 S.W. 822 (Mo. 1890).

City Counselor Ops.: 9996, 10270

Sections:

21.08.010 Leases to provide for roadway.
21.08.020 Permits.
21.08.030 Leases for five years or less.
21.08.040 Leases for more than five years.
21.08.050 Modification clause.
21.08.060 Unimproved and improved wharf defined.
21.08.070 Consideration of future uses.
21.08.080 Advertisement for proposals.

21.08.010 Leases to provide for roadway.

All leases of parts of the unimproved wharf, unless specially provided otherwise, shall give the use and control of the grounds leased to the lessee, subject to the condition that the lessee shall leave an unobstructed roadway, not less than twenty-five feet on each side of the flood wall or levee. (1960 C., § 291.010; 1994 C., § 21.08.010; Ord. No. 56707, § 1(part), 1974.)

RSMo:

RSMo 237.210 (2016) Cities may lease wharf, etc.

21.08.020 Permits.

A. The Board of Public Service upon recommendation of the Port Authority Commission may allow portions of the unimproved wharf and mooring on the improved wharf, owned by the City and not immediately needed for general public use to be used temporarily and occupied on such terms and conditions as the Board may deem proper. No such permit may be issued for a period longer than one year and such permits may be revoked by the Board upon one month's notice.

B. Fees established for such permits shall take into consideration the recommended rates of the Port Authority Commission and the total amount of such

fees shall be collected in advance for the entire length of time for which the permit is issued. (1960 C., § 291.020; 1994 C., § 21.08.020; Ord. No. 57326, § 6, 1977; Ord. No. 56707, § 1(part), 1974.)

21.08.030 Leases for five years or less.

Any person desiring to lease a portion of the unimproved public wharf or any person desiring to lease mooring rights along any portion of the improved public wharf for a period of not more than five years shall file an application with the Board of Public Service. This application shall state the name of the person desiring the lease, the terms, conditions, and duration thereof, the yearly price to be paid, and the purpose for which the area is to be used or occupied. An accurate plat of the location and boundaries of the parcel to be used shall be attached thereto and form a part thereof in the number of copies as specified by the Director of Streets. Upon recommendation of the Port Authority Commission and approval of the Board of Public Service, a notice shall be posted for a period of ten days in or adjacent to the area to be leased. If, after posting, no protest is received, a draft of the ordinance shall be introduced authorizing the lease. Any protests received during posting will be heard by the Board of Public Service before taking final action and drafting the ordinance authorizing the lease. (1960 C., § 291.030; 1994 C., § 21.08.030; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974; Ord. No. 55558, §§ 1, 2, 1970.)

City Counselor Ops.: 8748, 9078

21.08.040 Leases for more than five years.

No lease of any portion of the unimproved public wharf and no lease of mooring rights along any portion of the improved public wharf for a period longer than five years shall be authorized except by ordinance approved by the Port Authority Commission and the Board of Public Service after application for the lease. This application shall specify the name of the person desiring the lease, the terms and conditions thereof, the yearly price to be paid, the duration of the lease and the purpose for which the area is to be used or occupied. An accurate plat of the location and boundaries of the area to be leased shall be attached thereto and form a part thereof, in the number of copies as specified by the Director of Streets. Upon approval of the Board of Public Service a notice shall be posted for a period of ten days in or adjacent to the area to be leased. If after posting, no protest is received, a draft of the ordinance shall be introduced authorizing the lease. Any protests received during posting will be heard by the Board of Public Service before taking final action and drafting the ordinance authorizing the lease. (1960 C., § 291.040; 1994 C., § 21.08.040; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974; Ord. No. 55526, §§ 1, 2, 1970.)

City Counselor Ops.: 8748, 9078

21.08.050 Modification clause.

All leases shall contain clauses reserving the right of the City to modify, amend or cancel a lease in the event the premises are needed for right-of-way, sewer or floodwall construction purposes or any other municipal purpose or use. Municipal purpose or use shall include economic development in the Port District. (1960 C., § 291.050; 1994 C., § 21.08.050; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974.)

21.08.060 Unimproved and improved wharf defined.

For the purpose of determining the portions of the public wharf that may be released as provided in this chapter, the term "unimproved wharf" as used in this chapter means all land, riverbanks and beach dedicated, condemned, or belonging to the City for wharf purposes within the City, excluding that portion of the public wharf designated as the "improved wharf" lying within the following-described boundaries:

A portion of the public wharf bounded on the north by a line parallel to the south curb of Biddle, approximately station 388 + 33.42 on the floodwall; bounded on the south by a line parallel to the north curb of Chouteau Avenue and distant 400 feet more or less north therefrom along the floodwall, approximately station 14 + 20 on the floodwall; bounded on the west by the east curb of Leonor K. Sullivan Drive. (1960 C., § 291.060; 1994 C., § 21.08.060; Ord. No. 59706, § 2, 1986; Ord. No. 56707, § 1(part), 1974; Ord. No. 53225, § 1, 1965.)

21.08.070 Consideration of future uses.

In recommending land leases, the Port Authority Commission and the Board of Public Service shall consider future needs of the lessee for mooring rights and in granting mooring leases shall consider future uses of the land in order to avoid preventing future needs or use of the land or the mooring. (1960 C., § 291.070; 1994 C., § 21.08.070; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974.)

21.08.080 Advertisement for proposals.

A. The Port Authority Commission of the City of St. Louis is hereby authorized and directed, within six (6) months prior to the expiration, extension, execution, or renewal of any lease on the unimproved wharf, to negotiate rates and other terms and conditions of a lease; and if such fails, to advertise for proposals on behalf of the City of St. Louis in newspapers of general circulation, the City Journal and trade journals of national publication.

B. Notwithstanding anything to the contrary, the provisions of this section shall not be applicable to the leases, both land and mooring rights, of the St. Louis Municipal River Terminal. (1994 C., § 21.08.080; Ord. No. 70636, §§ 2, 3, 11-1-2017; Ord. No. 66275, §§ 2—4, 2004; Ord. No. 61755, § 1, 1989.)

Chapter 21.10

PORT DISTRICT RENTAL AND LEASE RATES

For port authority commission, see Ch. 21.36.

Sections:

21.10.010	**Applications to be recommended by Port Commission and Board of Public Service.**
21.10.020	**Base rental rate.**
21.10.030	**Adjustment of base rate.**
21.10.040	**Rates and adjustments to be in leases, contracts and agreements.**
21.10.050	**Amendment of ordinances.**
21.10.060	**Negotiation with users.**
21.10.070	**Leases not affected.**
21.10.075	**Lease forfeiture.**
21.10.080	**Power of Board of Aldermen.**
21.10.090	**Filing of applications.**

21.10.010 Applications to be recommended by Port Commission and Board of Public Service.

Pursuant to existing ordinances, applications for contracts, leases, permits or agreements relating to City-owned land and mooring within the Port District are required to be recommended by the Port Commission and by the Board of Public Service. No such application and no proposed contract, lease, permit or agreement shall be recommended, approved, granted or let unless same shall contain an undertaking by the user to pay the base rental rate set out in Section 21.10.020 and any adjustment in such base rate as provided for in Section 21.10.030. (1994 C., § 21.10.010; Ord. No. 57933, § 1, 1979.)

21.10.020 Base rental rate.

Until changed by further ordinance, the base rental rate for all land owned by the City which is situated within the Port District shall be $0.0750 per square foot, and the mooring rate shall be $7.50 per linear foot, each rate on an annual basis. (1994 C., § 21.10.020; Ord. No. 57933, § 2, 1979.)

21.10.030 Adjustment of base rate.

The base rate as set out in Section 21.10.020 may be adjusted at five-year intervals beginning January 1, 1984, upon recommendation of the Port Commission and approval of the Board of Public Service. No such recommendation by the Port Commission may be made unless within 180 days before the January 1, on which the adjusted rate is to become effective, the Port Commission shall conduct a public hearing with due notice to the public and to City-owned land and mooring users. The maximum adjustment which can be recommended and approved shall be twenty-five percent of the base rates set out in Section 21.10.020. Each adjustment shall be added to the base rate plus any previous adjustments and the resultant rate shall be called the current adjusted base rate. If the recommended adjustment to the base rate by the Port Commission and the Board of Public Service is in excess of 15%, the recommended raise of rate shall be approved by resolution of the Board of Aldermen. If the Board of Aldermen fail to act before the effective date of the rate, the rate then shall be automatically adjusted by 15%. (1994 C., § 21.10.030; Ord. No. 57933, § 3, 1979.)

21.10.040 Rates and adjustments to be in leases, contracts and agreements.

The rental or lease rates and adjustments thereto and procedures applicable to rate setting all as set out in Sections 21.10.020 and 21.10.030 shall:

A. Be contained in all proposed leases, contracts, or agreements which shall be proposed to the Board of Aldermen by the Port Commission and the Board of Public Service; and

B. Apply to all existing leases that contain a five-year renegotiation clause where the five-year period has elapsed and the rates are therefore subject to renegoti-

ation, and to all existing leases which provide for automatic adjustments in rates on a year-to-year or month-to-month basis, all as set out in Appendix I; and

C. Apply to all franchises where the original period of the agreement has expired and the terms of the tenancy are negotiable as to period and/or rental rates, all as specifically set out in Appendix II; and

D. Apply to all users of land or mooring under permits which are in effect on November 19, 1979, all as specifically set out in Appendix III; and

E. Apply to all permits for the use of land or mooring which may hereafter be recommended by the Port Commission and approved by the Board of Public Service, while this chapter is in effect. (1994 C., § 21.10.040; Ord. No. 57933, § 4, 1979.)

21.10.050 Amendment of ordinances.

Ordinances authorizing the leases set out in Appendices I, II, and III, as referred to in Section 21.10.040, are amended in such respects as may be necessary to carry out the rate structure contained in this chapter; provided, however, that any leaseholder, or permit holder set out in Appendices I, II, and III, whose rates are already at $7.50 and $0.0750 or higher and subject to escalation each year, may elect to be bound instead by the rate structure of his lease for the remaining term of said lease, and provided further, that any tenant or permittee designated in Appendices I, II and III may elect not to pay the new rates and instead to vacate the premises within ninety days after November 19, 1979. (1994 C., § 21.10.050; Ord. No. 57933, § 5, 1979.)

21.10.060 Negotiation with users.

The Port Administrator is authorized and directed to immediately begin negotiations with respect to all users listed in Appendices II and III, and to present proposals for new leases for such property, or a recommendation to the Commissioner and Board of Public Service for disposition that shall be consistent with the port development plans of the City and the Port Commission within twelve months from November 19, 1979. (1994 C., § 21.10.060; Ord. No. 57933, § 6, 1979.)

21.10.070 Leases not affected.

Notwithstanding Section 21.10.050, current leases which contain a renegotiation clause which limits the amount of any rate increase to 10%, will not be affected by this chapter. Further, this chapter shall not be deemed to impair or reduce the City's obligations under any lease, contract, or agreement currently in effect. Provided, however, the Port Commission may not recommend, and the Board of Public Service may not approve, any renewal, amendment, or extension of any lease, contract, agreement or permit pertaining to the rental of City-owned land within the Port District, or any mooring, unless such proposal contains an undertaking and provides for the payment of rent under the system set out in this chapter. (1994 C., § 21.10.070; Ord. No. 57933, § 7, 1979.)

21.10.075 Lease forfeiture.

The Port Authority is hereby directed to include the following in each of its future leases for land and mooring on the improved wharf:

"In the event lessee's business fails for any reason for any period beyond one year, this lease shall be forfeited." (1994 C., § 21.10.075; Ord. No. 60106, § 1, 1986.)

21.10.080 Power of Board of Aldermen.

Nothing in this chapter shall be deemed to limit the power of the Board of Aldermen to repeal or modify the rates or methods of adjustment of rates by duly enacted ordinance except that no such change shall be retroactive, or modify any lease or agreement which has been authorized and executed and is in its stated term, except with agreement of the lessee. (1994 C., § 21.10.080; Ord. No. 57933, § 8, 1979.)

21.10.090 Filing of applications.

Any application for use of any City-owned land or mooring within the Port District by lease, agreement, permit or purchase shall first be filed with the Secretary of the Board of Public Service. Such Secretary shall record the application and forward all materials to the Port Administrator for review and development. Said Secretary shall also notify the President of the Board of Public Service and the Street Director and other interested City agencies, of the pendency of said application. The Port Administrator shall present all such applications to the Port Commission along with a staff report regarding compliance with City, state and federal requirements and an assessment of the economic impact of the project and of the project's consistency with economic objectives of port-related development and drafts of required ordinances, if any. When the application is received and recommended by the Port Commission, it shall be forwarded to the Board of Public Service by the Chairman or by the Port Administrator. The President of the Board of Public Service

may request further staff analysis from any City department before action is taken by the Board of Public Service. Such analysis and additional requirements, if any, shall be sent to the Port Authority for its input and sent back to the Board of Public Service with the Port Authority recommendation. If the Board of Public Service shall approve, then a permit may be issued, or a lease ordinance recommended to the Board of Aldermen, subject to whatever reasonable conditions as may have been attached thereto by the Port Commission or Board of Public Service. Monitoring of any lease or permit issued under this chapter shall be accomplished by the Port Administrator, who shall request the assistance of appropriate City agencies when such assistance is necessary to carry out all City ordinances, state or federal regulations, which might apply to the transaction, or which may be appropriate in the circumstances in order to protect the life, health or property of citizens, or to further the economic development of the City. (1994 C., § 21.10.090; Ord. No. 57933, § 9, 1979.)

Chapter 21.12

MUNICIPAL QUAYS AND WAREHOUSES

City Counselor Ops.: 8451, 9687

Cases:

Validity of lease agreement between City and operator of municipal dock—operator permitted to set fees—lease within twenty-year limitation—repeal of conflicting ordinances. *St. Louis Terminal Corporation v. City of St. Louis,* 535 S.W. 2d 593 (Mo. App., 1976).

Editor's Note:

The procedures outlined in this chapter and Ch. 21.08 shall apply only to property, quays and warehouses within the port district owned by the city and not to property, quays and warehouses owned by the port authority.

Sections:

21.12.010 Definitions.

21.12.020 Supervision by Department of Streets.

21.12.030 Contracts for freight handling.

21.12.040 Permits—Conditions—Bond.

21.12.050 Permits—Required.

21.12.060 Care of quays.

21.12.070 Permittee to indemnify City.

21.12.010 Definitions.

The following words as used in this chapter shall mean:

A. "Quay" means any structure owned by the City, built on the Mississippi River shore and extending therefrom to deep water, so that boats may lie alongside to receive and discharge freight.

B. "Warehouse" means any warehouse owned by the City within the Port District.

C. "Tracks" means railroad tracks owned by the City within the Port District forming a railroad service for port facilities.

D. "Port facilities" includes quays, warehouses, tracks, tanks, pipelines, and any structures or facilities owned by the City related to handling materials and goods within the Port District.

E. "Equipment" means any mechanical or electrical machinery owned by the City installed on any quay to convey freight to and from it and any warehouse. (1948 C., Ch. 29, § 55; 1960 C., § 292.010; 1994 C., § 21.12.010; Ord. No. 57326, § 8, 1977; Ord. No. 56707, § 1(part), 1974.)

21.12.020 Supervision by Department of Streets.

The Department of Streets, with recommendation of the Port Authority Commission, shall have exclusive jurisdiction, control and supervision over the construction, maintenance equipment, operation and service of all quays, including warehouses, tracks, equipment and port facilities, used in connection with the operation thereof. The Department upon recommendation of the Port Authority Commission may make investigations and adopt rules and regulations not inconsistent with this chapter as necessary or expedient in carrying out the powers and duties here conferred, and in connection therewith shall have power to subpoena witnesses and order the production of books and records relating thereto. (1948 C., Ch. 29, § 56; 1960 C., § 292.020; 1994 C., § 21.12.020; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974; Ord. No. 48175, § 1(part), 1957.)

City Counselor Ops.: 9791, 9972

21.12.030 Contracts for freight handling.

The Board of Public Service, upon recommendation of the Port Authority Commission, may enter into contracts or agreement, either exclusive or nonexclusive, on behalf of the City for stevedore or other services for the handling of freight in connection with or for the operation of City-owned quays, warehouses, tracks,

equipment and port facilities subject to the terms and conditions herein prescribed, but nothing herein shall be construed as authorizing the Board to lease, sell, transfer or encumber quays and facilities or any part thereof, or in any manner limit or divest the City of its absolute ownership, management and control of any quays or facilities. Further, nothing contained in this chapter shall authorize the City or any of its agencies to operate port facilities in competition with private enterprise. All contracts shall be executed in the name of the City, signed by the President of the Board of Public Service with the approval of Board endorsed thereon, and countersigned by the Comptroller. All contracts shall be let upon competitive bidding to the lowest responsible bidder, subject to the right to reject any and all bids. All contracts shall not contemplate or involve the payment or expenditure of any money by the City. All contracts shall not be for a term exceeding five years, subject, however, to the right of renewal, by mutual consent, for two additional five-year terms. (1960 C., § 292.030; 1994 C., § 21.12.030; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974; Ord. No. 48175, § 1(part), 1957.)

City Counselor Ops.: 9791, 9972

21.12.040 Permits—Conditions—Bond.

The Board of Public Service, upon recommendation of the Port Authority Commission, may grant permits to use any City-owned quay, warehouse, equipment, tracks or port facilities or any portion thereof, not inconsistent with any law or general ordinance, and may revoke any permit at will. These permits may be for either joint or several use. They shall be issued for no specified times, and shall be assignable upon approval by the Board. The board, with Port Authority Commission recommendation, shall have power to prescribe conditions under which it will issue permits. These conditions shall bind equally each permittee. One condition shall be that the applicant shall deliver to the Secretary of the Board, to be filed with the Register of the City the following:

A. An agreement to be bound by the terms of this chapter and by all rules and regulations of the Board pertaining to quays, warehouses, equipment and tracks;

B. A duly executed bond, with duly approved surety in a sum to be determined by Board, conditioned for the faithful compliance by the permittee with all terms of this chapter, and for the total assumption by the permittee of all obligations imposed by the chapter. (1948 C., Ch. 29, § 57; 1960 C., § 292.040; 1994 C., § 21.12.040; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9791

21.12.050 Permits—Required.

No person or the government of the United States shall use any quay, warehouse, equipment, track, or port facility or portion thereof, until an application has been made to and obtained from the Board of Public Service for a permit to use such facilities. (1948 C., Ch. 29, § 58; 1960 C., § 292.050; 1994 C., § 21.12.050; Ord. No. 56707, § 1(part), 1974.)

21.12.060 Care of quays.

Every permittee shall keep the quay or portion thereof, used by him in a clean condition at his expense, and maintain the facility sufficiently to counteract undue deterioration resulting from his use or disuse of a permit. (1948 C., Ch. 29, § 59; 1960 C., § 292.060; 1994 C., § 21.12.060; Ord. No. 56707, § 1(part), 1974.)

21.12.070 Permittee to indemnify City.

Every permittee shall agree to save the City harmless from any and all damage and expense which may be suffered by it by reason of any and all acts done in connection with the use or disuse of any quay, warehouse, equipment or tracks. (1948 C., Ch. 29, § 60; 1960 C., § 292.070; 1994 C., § 21.12.070; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.16

REMOVAL OF GOODS, ENCROACHMENTS AND OBSTRUCTIONS

Prior ordinance history: Ord. 51391

City Counselor Ops.: 9996, 10270

Sections:

21.16.010 Compliance.
21.16.020 Time limit.
21.16.030 Removal—Goods.
21.16.040 Removal—Encroachments.
21.16.050 Obstructing traffic.

21.16.010 Compliance.

No owner, agent or consignee of any goods, wares, merchandise or other articles shall allow the material to remain on the public wharf longer than allowed by this chapter, nor fail to remove the material forthwith when

so ordered by the Director of Streets, or his authorized agent. (1960 C., § 293.010; 1994 C., § 21.16.010; Ord. No. 56707, § 1(part), 1974.)

21.16.020 Time limit.

Everything placed on the improved public wharf or landing shall be removed therefrom within forty-eight hours, unless the material has been landed for reshipment, in which case it shall be removed within seventy-two hours. (1960 C., § 293.020; 1994 C., § 21.16.020; Ord. No. 56707, § 1(part), 1974.)

21.16.030 Removal—Goods.

Whenever the Director of Streets or his authorized agent shall find that any goods, wares, merchandise, or other articles have remained on the improved public wharf for a period of time longer than permitted by Section 21.16.020 or any time that any goods, wares, merchandise, or other articles create an obstruction on the improved public wharf, the owner or agent of the materials shall be notified by mail to remove the same. If the owner or agent cannot be located, a notice to remove the obstruction shall be posted in the vicinity of the materials by the Director of Streets.

If the obstruction has not been removed within one week after notice or posting, the Director of Streets may remove the materials and dispose or sell the same in any manner he deems advisable. Any money derived from the sale of the materials shall be used to pay any expenses incurred in removal of same and any surplus shall be credited to the City. (1960 C., § 293.030; 1994 C., § 21.16.030; Ord. No. 56707, § 1(part), 1974.)

21.16.040 Removal—Encroachments.

Whenever the Director of Streets or his authorized agent shall determine that any part of the public wharf or the harbor is obstructed, occupied, or encroached upon or used in any manner or by any means without lawful authority, and the provisions of Sections 21.16.020 and 21.16.030 do not apply, the Director of Streets may, upon his own motion, or at the request of any person interested therein, if he shall find that the removal thereof is desirable as a matter of public convenience, notify the owner or person responsible for the encroachment or obstruction by mail to remove the same.

If the owner or person responsible for the encroachment or obstruction cannot be located, a notice to remove shall be posted in the vicinity of the encroachment or obstruction. If the encroachment or obstruction has not been removed within one week after notice or posting, the Director of Streets shall remove the encroachment or obstruction and dispose or sell the same in any manner he deems advisable.

Any money derived from the sale of such encroachments or obstructions shall be used to pay any expenses incurred in the removal of same and any surplus shall be credited to the City. (1960 C., § 293.040; 1994 C., § 21.16.040; Ord. No. 56707, § 1(part), 1974.)

Cases:

City contract to raise sunken boat—City estopped to deny its authority to enter such contracts. *City of St. Louis v. The Maggie P.,* 25 F. 202 (1885).

A city owning a public wharf may remove obstructions wrongfully there without becoming civilly liable therefor. *Hafner Mfg. Co. v. City of St. Louis,* 262 Mo. 261, 172 S.W. 28 (1914).

McQuillin:

24.95 Encroachments on wharves

21.16.050 Obstructing traffic.

The determination of the Director of Streets or his authorized agent shall be final and conclusive as to all questions relating to the handling of freight or merchandise or as to the position of any vessel or watercraft at any pier or other structure belonging to the City or anchored in the harbor, and all persons handling or in charge of freight or merchandise or vessels or watercraft shall handle the same expeditiously and without interfering with or blocking general traffic and without interfering with commerce and navigation. (1960 C., § 293.050; 1994 C., § 21.16.050; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.20

LANDING AND MOORING VESSELS AND WATERCRAFT

Prior ordinance history: Ords. 47041, 51391

City Counselor Ops.: 9996, 10270

Sections:

21.20.010 Mooring places.
21.20.020 Manner of mooring.
21.20.030 Permit required for extended stays.
21.20.040 Removal of vessels and watercraft.
21.20.050 Equipment—Numbering.
21.20.060 Securing vessels and watercraft.
21.20.070 Life lines.
21.20.080 Wharf rent.

21.20.090 Mooring not to affect taxes.
21.20.100 Regulations for wharfboats.
21.20.110 Landing by waterworks prohibited.
21.20.120 Conformity to provisions.

21.20.010 Mooring places.

All vessels and watercraft coming into the harbor of the City shall be anchored or moored at such points or places in the harbor as may be designated by the Director of Streets or his authorized agent. (1960 C., § 295.010; 1994 C., § 21.20.010; Ord. No. 56707, § 1(part), 1974.)

21.20.020 Manner of mooring.

All drydocks, floats, wharfboats and other landing facilities moored at the wharf shall be fastened so that their chains, cables, stages and crabs shall offer the least possible obstruction to the free passage of pedestrians and vehicles. (1960 C., § 295.020; 1994 C., § 21.20.020; Ord. No. 56707, § 1(part), 1974.)

21.20.030 Permit required for extended stays.

No vessel or watercraft not moored to a wharfboat, float, or other landing facility shall be permitted to remain at the improved wharf for a period longer than three days, unless a temporary permit therefor is obtained from the Director of Streets or unless a permit is issued by the Board of Public Service under terms and conditions fixed by Board, and at the rate applicable to wharfboat privileges set out in Section 21.20.080. (1960 C., § 295.030; 1994 C., § 21.20.030; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9652

21.20.040 Removal of vessels and watercraft.

The owner or person in charge of any vessel or watercraft moored at the improved wharf and not engaged in receiving or discharging freight, shall on written order of the Director of Streets promptly move his vessel or watercraft to such other place in the harbor as the Director of Streets may designate in his order. The vessel or watercraft shall remain until such time as it may be desired for the same to return to the improved wharf to be loaded or unloaded or to leave the harbor. (1960 C., § 295.040; 1994 C., § 21.20.040; Ord. No. 56707, § 1(part), 1974.)

21.20.050 Equipment—Numbering.

All watercraft and vessels shall carry the equipment required by the laws of the United States and the State of Missouri, and shall be numbered or designated in accordance with said law. (1960 C., § 295.050; 1994 C., § 21.20.050; Ord. No. 56707, § 1(part), 1974.)

21.20.060 Securing vessels and watercraft.

All vessels and watercraft laying at the wharf or landing within the harbor of the City shall be secured in a good, safe and sufficient manner. The master, owner or person in charge of any boat not so secured shall be in violation of this section. (1960 C., § 295.060; 1994 C., § 21.20.060; Ord. No. 56707, § 1(part), 1974.)

21.20.070 Life lines.

Life lines or ropes of a size and type to be designated by the Director of Streets or his authorized agent shall be suspended at intervals of five feet from the upstream end of any vessel or structure, or of any vessel anchored, or moored at the upstream end of a group of vessels, dock, or other structure or floating facility which shall remain for a period of time exceeding four hours. (1960 C., § 295.070; 1994 C., § 21.20.070; Ord. No. 56707, § 1(part), 1974.)

21.20.080 Wharf rent.

For the privilege of mooring and drydock, float, wharfboat, or other facility at the improved public wharf, the annual rental shall be a rate determined by the Board of Public Service upon recommendation of the Port Authority Commission and to be consistent with current market rates. (1960 C., § 295.080; 1994 C., § 21.20.080; Ord. No. 57326, § 7(part), 1977; Ord. No. 56707, § 1(part), 1974; Ord. No. 56300, § 1, 1972.)

City Counselor Ops.: 9652

Cases:

A municipal corporation may charge reasonable fees for use of its wharves on the navigable waters of the United States. *Packet Company v. St. Louis,* 100 U.S. 423 (1879).

Ordinance of St. Louis, prescribing wharfage dues at the improved wharves constructed by the city, is not in conflict with the federal constitution. *Northwestern Union Packet Co. v. St. Louis,* 18 F.C. 411 (1877).

21.20.090 Mooring not to affect taxes.

The mooring of any self-propelled vessel or watercraft alongside of any drydock, float, wharfboat or other landing facility shall not affect, in any manner, the wharfage or state or City taxes, dues or levee rates assessed or levied on the self-propelled vessels or watercraft landing thereat. All wharfage, tax, dues, or rates assessed shall be collected from each vessel or watercraft landing at any drydock, float, wharfboat or land-

ing facility as if the facility were not there. (1960 C., § 295.090; 1994 C., § 21.20.090; Ord. No. 56707, § 1(part), 1974.)

RSMo:

RSMo 154.040 *(2016)* Wharfage tax (cities of 50,000 or more)

City Counselor Ops.: 9652

21.20.100 Regulations for wharfboats.

Wharfboats and other facilities moored at the improved wharf shall be in conformity with the following conditions:

A. Every facility shall be connected with the wharf, at all times, by at least two stages of size and strength to be safe for the purpose for which they are to be used.

B. Every facility shall have sufficient breadth of beam and strength of deck to be stable and safe at all times.

C. Wharfboats less than two hundred feet in length shall not be moored with a space less than thirty feet between the wharfboat and the water's edge.

D. Wharfboats two hundred feet or more in length shall not be moored with a space less than forty feet between the wharfboat and the water's edge.

E. No boats, barges, or other watercraft of any kind shall be attached to any wharfboat or other landing facility so that the boat, barge or other watercraft shall extend beyond the facility more than one-half the length of the facility, nor extend beyond the limits of space assigned at the wharf for the facility. (1960 C., § 295.110; 1994 C., § 21.20.100; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9652

21.20.110 Landing by waterworks prohibited.

No vessel or watercraft of any kind whatever shall be permitted to land in front of any City waterworks building. (1960 C., § 295.120; 1994 C., § 21.20.110; Ord. No. 56707, § 1(part), 1974.)

21.20.120 Conformity to provisions.

No person shall moor or cause to be moored a drydock, float, wharfboat, or other facility at the public wharf contrary to the provisions and requirements of this Code. (1960 C., § 295.130; 1994 C., § 21.20.120; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9652

Chapter 21.24

WHARFBOATS, DRYDOCKS, FLOATS, PIERS, ETC.

Prior ordinance history: Ord. 51391

City Counselor Ops.: 9996, 10270, 10295

Sections:

21.24.010 Permit required.
21.24.020 Insurance required.
21.24.030 Length restricted.
21.24.040 Arrears in wharfage.
21.24.050 Designation of mooring places.
21.24.060 Unsafe piers and gangways.
21.24.070 Pier lights.
21.24.080 Safety devices.
21.24.090 Pier barriers.
21.24.100 City floats.
21.24.110 Fire piers.
21.24.120 Patrol floats.

21.24.010 Permit required.

Any person desiring to moor a drydock, float, wharfboat or other landing facility at the improved public wharf shall make a written application to the Board of Public Service for a permit. The application shall state the name and address of the applicant, the number and dimensions of watertight compartments, the length, width, and depth of the facility, the name, number and tonnage of each vessel and watercraft owned by the applicant for which the drydock, float, wharfboat or other facility is to be used, the trade in which each vessel or watercraft is to be employed and the exact proportion of each vessel or watercraft and of the wharfboat or other facility owned by each person, respectively. The application shall be verified by affidavit. All permits shall be subject to the following conditions:

A. That the drydock, float, wharfboat or other landing facility shall at all times be good, safe and seaworthy to the satisfaction of the Director of Streets or his authorized agent, and be supplied constantly with fire protection equipment satisfactory to the Board of Public Service;

B. That the owner or agent of the facility will strictly comply with all ordinances for the regulation of such facilities;

C. That, in case of the sinking of the facility from any cause, that facility or the wreck thereof, shall be removed from the harbor at the expense of its owner or agent so that it shall not obstruct the harbor;

D. That the owner shall protect and save the City harmless from all damages which may be sustained by it and all claims which may be made against it by reason of any injury to persons or damages to property resulting from the presence of the facility at the public wharf. (1960 C., § 296.010; 1994 C., § 21.24.010; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9791

Cases:

Distinction between tonnage duties and wharfage fees—City authorized to charge wharfage fees for use of wharfs and other facilities. *Northwestern Union Pacific Packet Company v. St. Louis,* 100 U.S. 423, 25 L. Ed. 688 (1880).

21.24.020 Insurance required.

Before the permit required by Section 21.24.010 is issued, the applicant shall file with the City Register an insurance policy naming the City as coinsured. The amount of insurance shall be determined by the Director of Streets. The insurance policy shall be approved by the City Counselor as to form and by the Comptroller as to surety. The insurance shall not expire or terminate until ten days after written notice has been received by the Director of Streets. (1960 C., § 296.020; 1994 C., § 21.24.020; Ord. No. 56707, § 1(part), 1974.)

21.24.030 Length restricted.

No drydock, float, wharfboat, or other facility which is more than four hundred feet long shall be allowed at the improved public wharf. (1960 C., § 296.030; 1994 C., § 21.24.030; Ord. No. 56707, § 1(part), 1974.)

21.24.040 Arrears in wharfage.

Any person owning a wharfboat, other facility, vessel, or watercraft, who falls in arrears to the City for wharfage rent shall not be allowed the privileges of this chapter so long as the wharfage rent remains unpaid. Such wharfboat, landing facility, vessel or watercraft shall not be permitted to remain at the improved public wharf of the City. The Director of Streets or his authorized agent shall remove such wharfboat, landing facility, vessel or watercraft from the wharf and for that purpose may call to his aid the St. Louis Police Department. (1960 C., § 296.040; 1994 C., § 21.24.040; Ord. No. 56707, § 1(part), 1974.)

21.24.050 Designation of mooring places.

The Director of Streets shall designate the place at the improved wharf where each mooring facility shall lie. The facility shall be removed to another locality designated by the Director of Streets whenever he shall consider removal necessary to the proper public use of the wharf and when removal and relocation are authorized by action of the Board of Public Service. (1960 C., § 296.050; 1994 C., § 21.24.050; Ord. No. 56707, § 1(part), 1974.)

21.24.060 Unsafe piers and gangways.

Whenever any pier or gangway devoted to passenger traffic shall be damaged or appears to the Director of Streets or his authorized agent to become unsafe so as to render the same or any portion thereof, a hazard to life or property, he shall order any unsafe portion thereof barricaded with proper fencing until the necessary repairs thereto shall be made. If the owner, agent, or lessee of the pier or gangway shall fail to comply with the orders, the Director of Streets or his authorized agent shall prohibit the use of the unsafe portion of the pier and may erect the necessary fencing or barricade and the expense shall be paid by and recoverable from the owner, agent, or lessee of pier, to the City. (1960 C., § 296.060; 1994 C., § 21.24.060; Ord. No. 56707, § 1(part), 1974.)

21.24.070 Pier lights.

In the interests of safe navigation and the protection of property, the Director of Streets or his authorized agent shall establish standards for the lighting of piers in the harbor. Between the hours of sunset and sunrise all piers shall be kept lighted in accordance with requirements set forth by the Director of Streets or his authorized agent. All walks, passageways, openings or gangways upon any pier upon or through which persons may pass shall be kept adequately lighted between sunset and sunrise. (1960 C., § 296.070; 1994 C., § 21.24.070; Ord. No. 56707, § 1(part), 1974.)

21.24.080 Safety devices.

Every owner, agent or lessee having charge of any commercial pier shall furnish and keep for use on the pier at least one serviceable thirty-inch ring life buoy for every three hundred lineal feet of berthing space to each of which shall be attached at least two hundred feet of suitable line. Each ring buoy and line attached thereto shall be kept in a suitable box on the pier for the use of the public in case of accident, which box shall be

properly labeled and be at all times kept clear of obstructions and it shall be unlawful to take away, molest, injure or destroy the same or either of them or to disturb the same or either of them except for use in saving life or property. (1960 C., § 296.080; 1994 C., § 21.24.080; Ord. No. 56707, § 1(part), 1974.)

21.24.090 Pier barriers.

Every owner, lessee, or agent of any pier open for public access to vessels or watercraft, or for any other purpose, shall guard the frontage of any roadway adjacent thereto by substantial and adequate fences or other barriers and shall guard the sides and faces thereof in a similar manner if used for vehicular access to any vessel or watercraft. All necessary openings or passages in the fences or barriers shall be provided with substantial gates which shall be closed and securely fastened when not in use. (1960 C., § 296.090; 1994 C., § 21.24.090; Ord. No. 56707, § 1(part), 1974.)

21.24.100 City floats.

All City floats or piers now or hereafter established, except as hereinafter specified, may be used by watercraft for dockage purposes, other than the handling of freight, free of charge for lying time not to exceed forty-eight hours at any one time. After such period the use of the facilities shall be only with the written permission and at the sole discretion of the Director of Streets or his authorized agent. (1960 C., § 296.100; 1994 C., § 21.24.100; Ord. No. 56707, § 1(part), 1974.)

21.24.110 Fire piers.

No passengers, freight or merchandise shall be handled over any location designated for the use of the fire boats of the Fire Department, nor shall such location be used for any purpose whatever other than municipal purposes. (1960 C., § 296.110; 1994 C., § 21.24.110; Ord. No. 56707, § 1(part), 1974.)

21.24.120 Patrol floats.

The Director of Streets or his authorized agent shall designate locations for such floats as may be necessary for patrol boats and shall prescribe rules and regulations for the use of the floats. (1960 C., § 296.120; 1994 C., § 21.24.120; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.28

OBSTRUCTIONS IN WATER

Prior ordinance history: Ord. 51391

City Counselor Ops.: 9996, 10270

Sections:

21.28.010 Grounded boats.

21.28.020 Removal of wrecks.

21.28.030 Disposition of salvage.

21.28.040 Removal of boats in danger by fire or ice.

21.28.050 Obstructions.

21.28.060 Sunken vessels.

21.28.070 Floating objects.

21.28.080 Nuisances.

21.28.010 Grounded boats.

No owner or person in charge of any vessel or watercraft shall suffer the same to be grounded at the improved public wharf or landing, and remain grounded through neglect, for a longer period of time than twenty-four hours. (1960 C., § 297.010; 1994 C., § 21.28.010; Ord. No. 56707, § 1(part), 1974.)

21.28.020 Removal of wrecks.

If any vessel or watercraft sinks in the harbor and the wreck is an obstruction to navigation in the harbor or to use of the wharf, the Director of Streets shall at once notify the owner or person in charge of such vessel or watercraft and cargo, if any, to remove the obstruction. He shall designate a time limit for the removal of the obstruction by the owner or person in charge. If the owner or person in charge of the wreck and cargo refuses or neglects to remove the obstruction within the time specified in the notice, the Director shall proceed immediately to remove the obstruction. (1960 C., § 297.020; 1994 C., § 21.28.020; Ord. No. 56707, § 1(part), 1974.)

Cases:

It is not a part of the public duty of a city to pump out and raise boats which sink at its levee. *City of St. Louis v. The Maggie P.,* 25 F. 204 (1885).

21.28.030 Disposition of salvage.

Any property, including cargo, furniture, engine, hull, tackle and apparel of the sunken vessel or watercraft saved from the wreck by the Director in removing any obstruction described in Section 21.28.020 shall be sold by him at public auction, after giving three days' notice in the paper doing the City printing, to the highest bidder for cash. From the proceeds of the sale, the Director shall retain the cost and expenses of removing the wreck and cargo, if any, and of saving and selling the parts thereof, and shall also retain twenty

percent of the balance, if any, as salvage. The remainder of the proceeds shall be paid into the City Treasury as a special fund subject to the right of the owners thereof and the laws applying to such case. The money retained for expenses and salvage shall be paid into the port revenue fund. (1960 C., § 297.030; 1994 C., § 21.28.030; Ord. No. 56707, § 1(part), 1974.)

21.28.040 Removal of boats in danger by fire or ice.

Any vessel or watercraft may at any time be required to leave forthwith the improved wharf by order of the Director of Streets, if, in his opinion, the vessel or watercraft is in danger of being injured by fire or ice. (1960 C., § 297.040; 1994 C., § 21.28.040; Ord. No. 56707, § 1(part), 1974.)

21.28.050 Obstructions.

No master, owner, or other person in charge of any towboat shall while towing any vessel, watercraft or obstruction obstruct the harbor in any way. The Director of Streets or his authorized agent shall have the power to order the removal of:

A. Any vessel, watercraft or obstruction anchored in the harbor or made fast, to any buoy, pier, or other structure owned by or under the authority and control of the City;

B. Any towboat or its tow, or both, when same is obstructing navigation in the harbor;

C. Any vessel, watercraft or obstruction lying at any pier in the harbor which is obstructing any slip, or other vessel or watercraft;

and it shall be unlawful to fail, neglect or refuse to do so. (1960 C., § 297.050; 1994 C., § 21.28.050; Ord. No. 56707, § 1(part), 1874.)

21.28.060 Sunken vessels.

When any vessel or watercraft or obstruction has been sunk or grounded, or has been delayed in a manner to stop or seriously interfere with or endanger navigation, the Director of Streets or his authorized agent may order the same immediately removed and if the owner or other person in charge thereof after being so ordered does not proceed immediately with removal the Director of Streets or his authorized agent may take immediate possession thereof and remove the same using methods as in his judgment will prevent unnecessary damage to the vessel or watercraft or obstruction. The expense incurred by the Director of Streets or his authorized agent in removal shall be paid by the owner or other person in charge of the vessel or watercraft or obstruction. In case of failure to pay the removal expenses the City may maintain an action for recovery thereof. (1960 C., § 297.060; 1994 C., § 21.28.060; Ord. No. 56707, § 1(part), 1974.)

21.28.070 Floating objects.

All vessels, watercraft, logs, piling, building material, scows, houseboats, or any other article of value found adrift in the St. Louis harbor may be taken in charge by the Director of Streets or his authorized agent and shall be subject to reclamation by the owner thereof on payment by him to the City of all expenses incurred by the City in connection therewith. In the event of failure to reclaim the article, same may be sold or disposed of according to law. (1960 C., § 297.070; 1994 C., § 21.28.070; Ord. No. 56707, § 1(part), 1974.)

21.28.080 Nuisances.

Sunken vessels or watercraft, refuse of all kinds, structures or pieces of any structure, dock sweepings, dead fish or parts thereof, dead animals or parts thereof, timber, logs, piles, boom sticks, lumber, boxes, empty containers and all other substances of articles of similar nature, are declared to be public nuisances and it shall be unlawful for any person to throw or place in, or cause or permit to be thrown or placed any of the above-named articles or substances in the St. Louis harbor, or upon the shores thereof or in such position that the same may or can be washed into the harbor, either by high water, storms, floods, or otherwise. Any person causing or permitting said nuisance to be placed as aforesaid shall remove the same and upon his failure so to do the same may be removed by the Director of Streets or his authorized agent and the expense thereof shall be paid by and recoverable from the person creating the nuisance. In all cases the nuisance may be abated in the manner provided by law. The abatement of any such public nuisance shall not exempt the person responsible therefor from prosecution hereunder. (1960 C., § 297.090; 1994 C., § 21.28.080; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.32

ENFORCEMENT

Prior ordinance history: Ord. 51391

City Counselor Ops.: 9996, 10270

Sections:

21.32.010 Director of Streets.

21.32.020 Exemption of authorized emergency vessels and watercraft.

21.32.030 Aiding and abetting violation.

21.32.040 Emergency powers.

21.32.010 Director of Streets.

The Director of Streets or his authorized agent and authorized personnel of the governments of the United States or the State of Missouri by virtue of their election or appointment shall have authority to enter upon and inspect any vessel or watercraft in the harbor. The Director of Streets or his authorized agent is charged with the enforcement of the provisions of this title. It shall be the duty of the Director of Streets or his authorized agent to make complaints for any violation of the same, or any part thereof, in the name of the City. This provision shall not operate to preclude the making of such complaint by any other person legally authorized to do so. The Director of Streets or his authorized agent is authorized to call upon the Police Department or any other authorized agency of the City for assistance in enforcement of any of the provisions of this title. (1960 C., § 298.010; 1994 C., § 21.32.010; Ord. No. 56707, § 1(part), 1974.)

City Counselor Ops.: 9617

21.32.020 Exemption of authorized emergency vessels and watercraft.

The provisions of this title shall be applicable to the operation of any and all vessels or watercraft in the harbor of this City, except that they shall not apply in the following cases:

To any authorized emergency vessel or watercraft actually responding to an emergency call or in immediate pursuit of an actual or suspected violator of the law, within the purpose for which the emergency vessel or watercraft has been authorized; provided that the provisions of this section shall not relieve the operator of an authorized emergency vessel or watercraft of the duty to operate with due regard for the safety of all persons using the City harbor nor shall it protect the operator of any emergency vessel or watercraft from the consequence of a reckless disregard for the safety of others; provided further, the provisions of this section shall in no event extend any special privilege or immunity in operation of an authorized emergency vessel or watercraft for any purpose other than for which the same has been authorized. (1960 C., § 298.030; 1994 C., § 21.32.020; Ord. No. 56707, § 1(part), 1974.)

21.32.030 Aiding and abetting violation.

It is unlawful to counsel, aid, or abet the violation of or failure to comply with any of the provisions of this Code. (1960 C., § 298.040; 1994 C., § 21.32.030; Ord. No. 56707, § 1(part), 1974.)

21.32.040 Emergency powers.

The Director of Streets or his authorized agent or other authorized personnel, where necessary to expedite waterborne traffic or to prevent or eliminate congestion or the safeguard of persons or property or in the event of a fire or other emergency, may direct waterborne traffic. (1960 C., § 298.050; 1994 C., § 21.32.040; Ord. No. 56707, § 1(part), 1974.)

Chapter 21.36

PORT AUTHORITY COMMISSION

Prior history: Ord. 56707; 1960 C. Ch. 299

For rental and lease rates, see Ch. 21.10.

City Counselor Ops.: 10146

Sections:

21.36.010 Appointment—Terms—Qualifications—Salaries.

21.36.020 Port Advisory Committee.

21.36.030 Powers and duties of Commission.

21.36.040 Budget preparation.

21.36.050 Jurisdiction.

21.36.010 Appointment—Terms—Qualifications—Salaries.

Pursuant to the requirements of RSMo 68.045 (1978), as amended, the method of appointment, terms, qualifications and salaries of the Port Authority Commission of the City shall be as follows:

A. The Port Authority Commission of the City shall consist of seven members as follows: the Director of Streets shall be a member of the Commission; the Chairman of the Transportation and Commerce Committee of the Board of Aldermen shall be a member (or such other committee to which, pursuant to the rules of the Board of Aldermen, bills affecting the Port District are assigned); five additional members shall be appointed by the Mayor, with the advice and consent of the Board of Aldermen, and shall serve at his discretion for a term of four years except that the terms of the appointive members serving on the Commission on the date this chapter becomes effective shall continue until their normal expiration dates.

B. Not more than four members of said Commission shall be of the same political party. All members shall be residents of the City. No member shall have a direct, indirect or beneficial interest in any business or enterprise engaged in port-related activities. No member shall have any financial interest directly or indirectly in the profits of any contract or business transaction of or with the Port Authority nor shall have any direct or indirect interest in any property, supplies, facilities or equipment sold, purchased or let to or by the Port Authority.

C. The Commission shall have the authority to establish such bylaws, rules and regulations as are necessary for the conduct of its business. All members of the Commission shall serve as such without compensation. (1994 C., § 21.36.010; Ord. No. 59240, § 2, 1984; Ord. No. 57326, § 2, 1977.)

Editor's Note:

Ordinance 59240 was approved August 6, 1984.

21.36.020 Port Advisory Committee.

A Port Advisory Committee is established, the membership, number thereof, duties and organization to be recommended by the Port Commission, for the purpose of providing counsel to the Commission on port activities and port development. Membership on said Committee should include persons having knowledge of the port and may be persons participating in port-related businesses or enterprises. The members of said Committee shall have no vote. They shall, subject to the recommendation of the Commission, be appointed by the Mayor and shall serve at the pleasure of the Mayor. (1994 C., § 21.36.020; Ord. No. 57326, § 3, 1977.)

21.36.030 Powers and duties of Commission.

In addition to the powers granted local port authorities delineated in RSMo 68.010 through 68.070 (Supp. 1975), the Port Authority Commission of the City shall also have the following powers and duties:

A. Study all aspects of safety within the Port District and to establish regulations and standards not subject to federal regulation with respect to mooring, freight, and material handling, fire protection, watercraft, construction, obstructions, personnel and other such matters in the interest of public safety. Any and all such regulations made by the Commission shall be effective for a period of six months and no longer unless such regulation is continued in effect by the Board of Aldermen by the passage of a duly enacted ordinance. Any and all regulations made by the Commission may be nullified or set aside by a duly enacted ordinance of the Board of Aldermen. Any and all such regulations made by the Commission shall be printed in the Journal at least thirty days prior to the effective date thereof.

B. Study and establish land, mooring and related facility use within the Port District and to recommend any zoning changes required to effect such use and to recommend any proposed zoning changes within the Port District.

C. Study and recommend action on any port facilities and methods and funding by the City and study and recommend action on construction of any private port facilities and funding requiring City action.

D. Study and recommend any fees, lease rates, cargo rates or other charges by the City deemed necessary and proper for port development.

E. Investigate operating and financial practices of any port-related enterprise operating publicly owned facilities and to recommend to authorized agencies appropriate corrective action.

F. The Port Authority Commission shall have the general duty to develop industrial facilities within the Port District in addition to those duties delineated in RSMo Ch. 68 (Supp. 1975). (1994 C., § 21.36.030; Ord. No. 57326, § 4, 1977.)

21.36.040 Budget preparation.

A. The Port Authority Commission shall annually prepare a budget request for employment of personnel and such other reasonable expenses such as, but not limited to, supplies, equipment, printing, contractual services, etc., necessary to carry out the business of the Port Authority. After approval of the Port Commission, the Chairman shall submit said budget request for appropriation from the Port Development Fund, subject to limitations as hereinafter provided, through the City budget process.

B. All gifts, contributions, grants and donations accepted by the Commission shall be deposited in a special cash account known as Port Development Fund and shall be used solely for the purpose indicated.

C. All fees, cargo and lease revenues, land sale revenues and other charges made by the City for port-related activities in the Port District and not dedicated to bond retirement shall be deposited in the Port Development Fund.

D. The Board of Estimate and Apportionment shall give first priority to appropriation from the Port Development Fund to the Port Authority budget, related research and development study, promotion expenditures, maintenance of City-owned port facilities, and acquisition and development of land. Any excess funds shall be transferred to general revenue.

E. The Board of Aldermen, from time to time, may appropriate general revenue or other funds to this account for such expenditures, if needed, or for special purposes.

F. The Port Authority Commission may authorize the Chairman and/or Port Administrator of the Commission to disburse such funds as are budgeted or authorized by the Board of Aldermen. (1994 C., § 21.36.040; Ord. No. 57326, § 5, 1977.)

21.36.050 Jurisdiction.

The Port Authority Commission of the City shall have jurisdiction over the Port District established in Ordinance 56939, approved March 21, 1975, and as may be amended from time to time. (1994 C., § 21.36.050; Ord. No. 57326, § 10, 1977.)

Chapter 21.40

WHARF VENDING DISTRICT

Editor's Note:

Ord. No. 70313, § 2, adopted June 29, 2016, amended the Code by repealing former ch. 21.40, §§ 21.40.010—21.40.050, and adding a new ch. 21.40. Former ch. 21.40 pertained to the sale of merchandise on wharves, and derived from Ord. No. 56267 of 1972 and Ord. No. 61362 of 1989.

Sections:

21.40.010	**Description of wharf area subject to this chapter.**
21.40.020	**Riverfront Vending Committee.**
21.40.030	**Rules and Regulations for the Wharf Vending District.**
21.40.040	**Riverfront Wharf Revitalization Fund.**
21.40.050	**Prohibition and penalty.**

21.40.010 Description of wharf area subject to this chapter.

The subject property of this chapter is the portion of the wharf between the north curb line of Chouteau Avenue and the south curb line of Biddle Street and the west curb line of Leonor K. Sullivan Boulevard and the west curb lane of the Levee Fire Lane, as depicted in Exhibit A. This property is to be known as the "Wharf Vending District." (1994 C., § 21.40.010; Ord. No. 70313, § 3, 6-23-2016.)

21.40.020 Riverfront Vending Committee.

A. *Establishment.* There is hereby established a committee in and for the subject area which shall be known as the Riverfront Vending Committee (RVC).

B. *Composition.* The RVC shall consist of five (5) members.

C. *Membership.* The RVC shall initially be composed of the Port Manager of the City of St. Louis Port Authority, the Special Events Program Executive of the City of St. Louis, the Director of Streets of the City of St. Louis, the Executive Director of Great Rivers Greenway and another member designated by the Executive Director of Great Rivers Greenway. Any member listed herein may appear at such meeting by designee from his or her City department, or in the case of Great Rivers Greenway, from that entity.

Great Rivers Greenway is a party to the cooperation agreement with the City of St. Louis authorized by Ordinance 69542, which agreement recognizes Great Rivers Greenway's participation in and commitment to the development of the broader Riverfront Area, of which the Wharf Vending District established herein is a part. Within 90 days of passage of this chapter, all Committee members shall be approved for service on the Committee by the consent of a majority of the Board of Aldermen of the City of St. Louis. If any Committee member or proposed Committee member is not approved by a majority of the Board of Aldermen, the Mayor will submit an alternative member for approval by the Board of Aldermen.

D. *Designation of Chairman.* The Executive Director of Great Rivers Greenway shall be designated as the Chairman of the RVC.

E. *Area of Effect.* The RVC shall be responsible for providing extensive advisory input as set forth in this chapter, including providing required comment and review of applications for vending permits within the subject area. No vending permit shall be approved for the area set forth in Section 24.40.010 without the approval of the RVC.

F. *Meetings.* The meetings of the RVC shall be held at the call of the Chairman, and at other such times as the RVC may determine. Three (3) members shall constitute a quorum, and in the absence of the

Chairman, the City's representative shall be the Active Chairman. Meetings of the RVC may be called by the Special Events Program Executive of the City of St. Louis. No official action of the RVC shall be taken except at a meeting open to the public. The Special Events Program Executive of the City of St. Louis shall be designated as Secretary of the RVC and shall be responsible to keep minutes of its proceedings showing the vote of each member upon each question, or if absent or failing to vote, indicate such fact. A majority of the RVC may adopt rules and regulations to govern the procedure before the RVC.

G. *Duties and Powers.* The RVC shall review applications for vending permits seeking to do business in the Wharf Vending District as described in Section 21.40.010 and depicted in Exhibit A. The Street Director of the City of St. Louis will receive permit applications from vendors seeking a permit for vending in the area referenced herein, and will submit all such vending applications to the RVC. The Street Director shall issue Riverfront Wharf vending permits as recommended by majority vote of a quorum of the RVC, and shall complete all duties set forth to him under this chapter. (1994 C., § 21.40.020; Ord. No. 70313, § 4, 6-23-2016.)

21.40.030 Rules and Regulations for the Wharf Vending District.

In addition to all other requirements of this chapter, the following provisions shall apply to every vending business in the Wharf Vending District. The provisions of this section shall supersede any other provision of the City Code if such provisions are inconsistent.

A. Every vending business in the Wharf Vending District must operate from a fixed location designated by the RVC and specified on its permit, except when licensed as a festival vendor.

B. Vendors must apply for and obtain a permit to operate a vending business in the Wharf Vending District as provided in this section prior to obtaining a vendor's license from the License Collector. Vending permits shall be issued by the Director of Streets ("Street Director") for locations within the Wharf Vending District.

C. No person, partnership or corporation shall be issued more than two (2) vendor's permits for locations within the Wharf Vending District.

D. Vendors' permits in the Wharf Vending District shall be approved prior to issuance by the RVC. No such permit shall be issued unless review, comment and approval has issued at a public meeting of the RVC.

E. The proposed annual fee for a vendor's permit in the Wharf Vending District shall be submitted by the permit applicant responding to a request for proposal; provided, however, that the minimum annual fee for a vendor's permit shall be $1000.00; also provided that this fee may be increased by the Street Director, in his discretion, after recommendation of the RVC, identifying increases in regulatory costs to the City justifying proposed fee increases.

F. When the Street Director, at the request of the RVC, determines that a vending permit should be issued for a location within the Wharf Vending District:

1. The RVC shall establish criteria, as follows:

a. Vending location;

b. Items to be sold, e.g. food, beverage, clothing;

c. Hours of vending;

d. Type of vending structure; the criteria shall expressly provide that no vending may be done from shopping carts;

e. Contribution to diversity of products available from vendors, and diversity of appearance of vendors' facilities, within the Wharf Vending District.

2. The Street Director shall cause to be issued a solicitation for permit applications, which shall:

a. Be published in two newspapers of general circulation in the metropolitan area and on the City's website for two weeks;

b. Identify the vending location;

c. State the criteria;

d. Request permit applications, which shall:

i. Require applicants to indicate whether they will pay the City sums above the minimum fee;

ii. Require appropriate applicant identity information;

iii. Require photographic and other information about the vending structure;

iv. Contain detailed information regarding items to be sold and prices and suppliers;

v. Provide additional information as deemed appropriate; and

vi. State the due date for applications.

3. After receipt of permit applications, the Street Director shall forward the same to the RVC. Based upon the recommendation of the RVC, all applications may be rejected.

G. No permit issued under the provisions of this chapter shall be assignable or transferable.

H. The Street Director shall revoke the permit of any duly licensed persons or itinerants for not comply-

ing with the provisions of this chapter and notification of all revoked permits shall be given to the License Collector's Office.

I. Permit fees shall be deposited in the Riverfront Wharf Revitalization Fund, established herein. (1994 C., § 21.40.030; Ord. No. 70313, § 5, 6-23-2016.)

21.40.040 Riverfront Wharf Revitalization Fund.

There is hereby established a special fund, to be known as the Riverfront Wharf Revitalization Fund. Funds in the Riverfront Wharf Revitalization Fund may be appropriated only for expenditures that are recommended by the RVC for maintaining and improving the Wharf Vending District. This fund is to be a dedicated account, opened and maintained by the Port Authority of the City of St. Louis for the limited use of expenses related to the Wharf Vending District as recommended by a majority of the RVC and approved by the Board of Estimate and Apportionment. (1994 C., § 21.40.040; Ord. No. 70313, § 6, 6-23-2016.)

21.40.050 Prohibition and penalty.

No person shall occupy the Wharf Vending District for the purpose of displaying, selling or offering for sale, any goods, food or merchandise, unless said person has secured a permit or lease under the provisions of this chapter or is a part of a Special Event registered with the Office of Special Events of the City of St. Louis. Any person or firm violating the provisions of this chapter shall, upon conviction, be fined the sum of not less than one hundred ($100.00) dollars nor more than five hundred ($500.00) dollars. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 21.40.050; Ord. No. 70313, § 7, 6-23-2016.)

Title 22

PARKS, RECREATION AND FORESTRY

Charter:

Art. I § 1(14) Authority to establish parks

Art. I § 1(32) Power to provide and maintain recreative institutions

Art. VII § 1 Origin of office

Art. XIII § 14-B Department of parks, recreation and forestry

Scheme § 10 Title to parks transferred to city

RSMo:

RSMo 90.010 (2016) Parks—Establishment, maintenance

RSMo 90.020 (2016) Park lands—Condemnation

Cases:

A city ordinance prohibiting the operation of any manufacturing establishment by steam, electricity, gas or other motive power within 600 feet of a city park, was invalid for unreasonableness. *City of St. Louis v. Dreisoerner,* 147 S.W. 998 (1912).

Contribution of city's funds to United States for acquisition and construction of national public park in city held valid. *Vrooman v. City of St. Louis,* 88 S.W. 2d 189 (1935).

McQuillin:

28.50 et seq. Public parks and squares

Chapters:

22.04 **Director of Parks, Recreation and Forestry**

22.05 **Operation Brightside Agency**

22.08 **Division of Parks**

22.12 **Division of Recreation**

22.16 **Park Regulations**

22.18 **Curfew in Parks**

22.20 **Concessions**

22.22 **Beverage Cans or Bottles in Public Places**

22.23 **Beverage Bottles in Public Parks**

22.24 **Use of Facilities by Organized Groups**

22.28 **Zoological Park**

22.32 **Park Rental and Leasing**

22.36 **Dwight F. Davis Tennis Tournament Center**

22.40 **Park Assembly Permits**

22.42 **Park, Square or Plaza Land Use**

22.44 **Designation of Parks and Other Recreational Facilities**

22.48 **Division of Forestry**

Chapter 22.04

DIRECTOR OF PARKS, RECREATION AND FORESTRY

Charter:

Art. VIII § 1 Origin of offices

Sections:

22.04.010 **Duties.**

22.04.020 **Commissioner of Parks.**

22.04.030 **Commissioner of Recreation.**

22.04.040 **Commissioner of Forestry.**

22.04.050 **Responsibilities—Permits.**

22.04.060 **Donations.**

22.04.070 **Statues.**

22.04.080 **Designation of places by donor's name.**

22.04.090 **Private donations ceasing to be City property.**

22.04.100 **Building leases for residential purposes.**

22.04.110 **Athletic fields and playgrounds on private property.**

22.04.120 **Leases for use of private property.**

22.04.130 **Authority over leased property.**

22.04.140 **Maintenance and care of public facilities.**

22.04.010 Duties.

The Director of Parks, Recreation and Forestry shall perform those duties as prescribed by the City Charter Article XIII, Section 14-B(a) and any additional duties as may be prescribed by ordinance and shall have under his jurisdiction the management, control and supervision of all the divisions of the Department of Parks, Recreation and Forestry. (1948 C., Ch. 2, § 83; 1960 C., § 220.010; 1994 C., § 22.04.010; Ord. No. 49758, § 1(83), 1959.)

City Counselor Ops.: 8585, 8769, 9362

22.04.020 Commissioner of Parks.

The Director of Parks, Recreation and Forestry shall appoint the Commissioner of Parks whose duties shall be those prescribed by the City Charter, Article

XIII, Section 14-B(b) and any additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 84a; 1960 C., §§ 220.020(part), 220.030(part); 1994 C., § 22.04.020; Ord. No. 49758, § 1(84a), 1959.)

City Counselor Ops.: 8585, 8769, 9362

22.04.030 Commissioner of Recreation.

The Director of Parks, Recreation and Forestry shall appoint the Commissioner of Recreation whose duties shall be those prescribed by the City Charter, Article XIII, Section 14-B(c) and any additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 84b; 1960 C., Ch. § 220.030(part); 1994 C., § 22.04.030; Ord. No. 49758, § 1(84b), 1959.)

City Counselor Ops.: 8585, 8769, 9362

22.04.040 Commissioner of Forestry.

The Director of Parks, Recreation and Forestry shall appoint the Commissioner of Forestry whose duties shall be those prescribed by the City Charter, Article XIII, Section 14-B(d) and any additional duties as may be prescribed by ordinance. (1948 C., Ch. 2, § 84(c); 1960 C., Ch. §§ 220.020(part), 220.030(part); 1994 C., § 22.04.040; Ord. No. 49758, § 1(84c), 1959.)

City Counselor Ops.: 8585, 8769, 9362

22.04.050 Responsibilities—Permits.

The Department of Parks, Recreation and Forestry shall be in charge of the Director of Parks, Recreation and Forestry. The Director shall be responsible for the supervision and coordination of all activities of the Department of Parks, Recreation and Forestry. He shall also grant all permits to occupy or use portions of any park, park area, historic site, playground, swimming pool, garden or other area owned or used by the City for recreational purposes and facilities in connection therewith, except highways, streets, or park drives therein, when the occupancy or use is consistent with the public use thereof and is not inconsistent with any law or general ordinance, and any permit may be revoked by the Director at any time. (1948 C., Ch. 48, § 1; 1994 C., § 22.04.050; Ord. No. 49771, § 1(1), 1960.)

City Counselor Ops.: 8629, 8891, 9307

McQuillin:

28.50a Commissions and boards

22.04.060 Donations.

The Director of Parks, Recreation and Forestry is authorized, with the approval of the Board of Public Service, to accept and take charge of, for and on behalf of the City, all donations made to the public parks, places or squares of the City by private individuals or societies. It is hereby made his duty to devote and apply donations strictly to the purposes for which they were made. (1960 C., § 220.040; 1994 C., § 22.04.060; Ord. No. 49771, § 1(2), 1960.)

City Counselor Ops.: 8629, 8891, 9307, 9631, 9796

22.04.070 Statues.

The Director of Parks, Recreation and Forestry shall be authorized with the approval of the Board of Public Service on the submission of proper plans and sketches to allot space of ground in any of the public parks, places or squares as may be required for the erection of any monument, statue or other work of art or utility in commemoration of the services of the beneficence of any person or society who may offer to provide same at their own expense. (1960 C., § 220.050; 1994 C., § 22.04.070; Ord. No. 49971, § 1(3), 1967.)

City Counselor Ops.: 8629, 8891, 9307, 9488, 9631

22.04.080 Designation of places by donor's name.

The Director of Parks, Recreation and Forestry shall have authority to designate officially certain places in the public parks, places and squares which have been improved by private donations by the name of the donor, and he shall in all such cases file a copy of the articles or stipulations of donation with the Register. (1960 C., § 220.060; 1994 C., § 22.04.080; Ord. No. 49771, § 1(4), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.04.090 Private donations ceasing to be City property.

In case any public park, place or square containing any monument, statue or other work of art or utility erected from private donations as provided by Section 22.04.070 shall hereafter cease to be the property of the City, the donor or his legal representatives shall have permission to remove the same from the premises with the consent of the Director of Parks, Recreation and Forestry previously obtained. (1960 C., § 220.070; 1994 C., § 22.04.090; Ord. No. 49771, § 1(5), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.04.100 Building leases for residential purposes.

The Director of Parks, Recreation and Forestry, with the approval of the Comptroller, is authorized on behalf of the City to lease any building in the public parks for the period of one year or less for residence

purposes only. Such lease shall be subject to be terminated upon the giving of a thirty day notice to the lessee and in all cases the rents are to be payable in advance. (1960 C., § 221.050; 1994 C., § 22.04.100; Ord. No. 49771, § 1(6), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.04.110 Athletic fields and playgrounds on private property.

The Director of Parks, Recreation and Forestry is authorized to construct, equip and maintain athletic fields, recreation grounds and children's playgrounds on property owned by private persons. (1960 C., § 220.080; 1994 C., § 22.04.110; Ord. No. 49771, § 1(7), 1960.)

City Counselor Ops.: 8276, 8629, 8891, 9307

22.04.120 Leases for use of private property.

The Director of Parks, Recreation and Forestry shall not have power to do any of the work provided for in Section 22.04.110 unless and until he shall have obtained a lease in writing from the owner of the property granting permission to use the property for the purposes above mentioned, which lease shall not be entered into for a period shorter than three months or longer than five years. The lease must be approved by the Comptroller and the Board of Estimate and Apportionment before it shall become operative. The consideration for the use of such properties shall in no case exceed the sum of five dollars per year. (1960 C., § 220.090; 1994 C., § 22.04.120; Ord. No. 49771, § 1(8), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.04.130 Authority over leased property.

The Director of Parks, Recreation and Forestry shall have the same power and authority over any property leased under the provisions of Sections 22.04.110 and 22.04.120 that he has over other public parks and squares. (1960 C., § 220.100; 1994 C., § 22.04.130; Ord. No. 49771, § 1(9), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.04.140 Maintenance and care of public facilities.

The maintenance and care of all public playgrounds, public baths, and public recreational facilities now existing or that may hereafter be established or erected in the City, shall be vested in the Department of Parks, Recreation and Forestry. (1960 C., § 221.070; 1994 C., § 22.04.140; Ord. No. 49771, § 1(10), 1960.)

City Counselor Ops.: 8629, 8891, 9307

Chapter 22.05

OPERATION BRIGHTSIDE AGENCY

Sections:

22.05.010 Established; membership.

22.05.020 Vested accrued benefit.

22.05.030 Agreement with Operation Brightside, Inc.

22.05.010 Established; membership.

There is hereby established as a division of the Department of Parks, Recreation and Forestry an Operation Brightside Agency, which Agency shall consist of:

A. A Program Manager of the Operation Brightside Agency, who shall be appointed by the Director of Parks, Recreation and Forestry in accordance with Article XVIII of the Charter. The Program Manager shall be the executive head of the Operation Brightside Agency, and shall be responsible for carrying out the duties of such Agency. The Program Manager shall receive a salary fixed in accordance with ordinance provisions. The Program Manager shall organize and coordinate City-wide cleanup and beautification programs with City departments, other governmental entities and private organizations and shall have such additional authority, duties and responsibilities as may be authorized by ordinance.

B. An Operation Brightside Agency staff, to consist of such technical, clerical, stenographic, and other personnel as deemed necessary by the Program Manager. The Program Manager may employ such personnel, and when they are to be compensated, may make such expenditures within the appropriations therefor, or from other funds made available, as may be necessary to carry out the purposes of this chapter. In all applicable cases, the system of personnel administration in the Operation Brightside Agency shall be in accordance with the merit system requirements of Article XVIII of the Charter, as supplemented by ordinance rules or regulations. (1994 C., § 22.05.010; Ord. No. 68331, § 1, 4-22-2009.)

22.05.020 Vested accrued benefit.

Any employees of Operation Brightside, Inc., a Missouri not-for-profit corporation, who become mem-

bers of the Employees Retirement System of the City of St. Louis as a result of the creation of the Operation Brightside Agency in the classified service pursuant to this chapter will have a vested accrued benefit immediately upon his or her becoming a member based on his or her creditable service (as that term is defined by Section 4.16.010) since becoming a member. (1994 C., § 22.05.020; Ord. No. 68331, § 2, 4-22-2009.)

22.05.030 Agreement with Operation Brightside, Inc.

The Mayor and Comptroller are hereby authorized to execute and deliver, on behalf of the City of St. Louis (the "City") a cooperation agreement with Operation Brightside, Inc., substantially in the form attached as Exhibit A to the ordinance codified in this chapter. (1994 C., § 22.05.030; Ord. No. 68331, § 3, 4-22-2009.)

Chapter 22.08

DIVISION OF PARKS

Charter:

Art. XIII § 14-B(b) Division of parks

City Counselor Ops.: 8629, 8891, 9307

Sections:

22.08.010 Commissioner of Parks—Appointment—Responsibilities.

22.08.020 Employees.

22.08.030 Park guards.

22.08.040 Picnic area permits.

22.08.050 Fishing.

22.08.010 Commissioner of Parks—Appointment—Responsibilities.

The Division of Parks shall be in charge of the Commissioner of Parks, appointed by the Director of Parks, Recreation and Forestry. The Commissioner shall be responsible for:

A. Developing, managing, operating and maintaining parks, park areas, historical sites, playgrounds, swimming pools, gardens and other areas owned or used by the City for recreational purposes and facilities in connection therewith;

B. The operating and maintaining of the City's greenhouses, nurseries and City planetarium. (1960 C., § 221.010; 1994 C., § 22.08.010; Ord. No. 51126, 1962; Ord. No. 49771, § 1(12), 1960.)

22.08.020 Employees.

The Commissioner of Parks is authorized to appoint and control the number of assistants and subordinate employees as may be necessary to perform the duties of the Division of Parks prescribed by the Charter and ordinances of the City. (1960 C., § 221.020; 1994 C., § 22.08.020; Ord. No. 49771, § 1(13), 1960.)

22.08.030 Park guards.

The Commissioner of Parks shall have the authority to appoint park guards for the several parks of the City. Park guards shall be sworn in as private policemen pursuant to RSMo 84.340 (1949), and shall be entrusted with the enforcement of the provisions of this chapter and shall have the assistance of the metropolitan police force in carrying out their duties. (1960 C., § 221.030; 1994 C., § 22.08.030; Ord. No. 49771, § 1(14), 1960.)

Editor's Note:

RSMo 84.340 was amended in 2014.

City Counselor Ops.: 7614, 7914, 8379, 9785

22.08.040 Picnic area permits.

The Commissioner of Parks may designate picnic areas in certain of the public parks for private individuals or groups and shall have authority to issue permits for such picnic areas upon written application from the individual or group applying therefor. The Commissioner of Parks, with the approval of the Director of Parks, Recreation and Forestry, shall establish regulations and rules governing the issuance of such permits. (1960 C., § 221.060; 1994 C., § 22.08.040; Ord. No. 49771, § 1(15), 1960.)

City Counselor Ops.: 8377

22.08.050 Fishing.

Fishing in public parks may be allowed in pools designated by the Commissioner of Parks. The Commissioner of Parks may prescribe rules and regulations governing the fishing in the pools. (1960; 1960 C., § 221.080; 1994 C., § 22.08.050; Ord. No. 56219, § 1, 1972; Ord. No. 49771, § 1(16), 1960.)

City Counselor Ops.: 8377

Chapter 22.12

DIVISION OF RECREATION

Sections:

22.12.010 Commissioner of Recreation—Appointment—Responsibilities.

22.12.020 Employees.
22.12.030 Rules and regulations.
22.12.040 Permits and schedules for facilities.
22.12.050 Tennis court permits.
22.12.060 Mark C. Steinberg Memorial Skating Rink schedules and charges.
22.12.070 Sales tax.

22.12.010 Commissioner of Recreation—Appointment—Responsibilities.

The Division of Recreation shall be in charge of the Commissioner of Recreation appointed by the Director of Parks, Recreation and Forestry. The Commissioner shall be responsible for the development and administration of the City's public recreational program and for the general supervision and control over all other recreational activities in the City parks and recreation areas. (1960 C., § 222.010; 1994 C., § 22.12.010; Ord. No. 49771, § 1(17), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.12.020 Employees.

The Commissioner of Recreation is authorized to appoint and control the number of assistants and subordinate employees as may be necessary to perform the duties of the Division of Recreation prescribed by the Charter and ordinances of the City. (1960 C., § 222.020; 1994 C., § 22.12.020; Ord. No. 49771, § 1(18), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.12.030 Rules and regulations.

The Commissioner of Recreation shall have the power, with the approval of the Director of Parks, Recreation and Forestry, to make all rules and regulations governing the conduct and use of all public recreation facilities. (1960 C., § 222.030; 1994 C., § 22.12.030; Ord. No. 49771, § 1(27), 1960.)

City Counselor Ops.: 8629, 8891, 9307

22.12.040 Permits and schedules for facilities.

The Commissioner of Recreation, with the approval of the Director of Parks, Recreation and Forestry, may issue permits for and establish schedules regulating the use of swimming pools, athletic fields, golf courses, skating rinks and other recreational facilities owned and operated by the Department of Parks, Recreation and Forestry. The Director of Parks, Recreation and Forestry shall deposit with the City Treasurer weekly all sums collected pursuant to the provisions of this chapter. The Treasurer shall issue a receipt therefor, a copy of which shall be filed with the Comptroller. (1960 C., § 222.040; 1994 C., § 22.12.040; Ord. No. 56918, § 1, 1975; Ord. No. 56733, § 1(part), 1974; Ord. No. 49771, § 1(26), 1960; Ord. No. 49509, § 1, 1959.)

City Counselor Ops.: 8629, 8891, 9307

22.12.050 Tennis court permits.

A. A tennis court permit and fee therefor, separate and apart from any other permit or fee, shall be required for the use of all City tennis courts. No person shall use any of the above facilities owned or operated by the City unless the person possesses a current tennis court permit.

B. There shall be different classifications of tennis court permits, as follows:

1. Resident or taxpayer adult tennis court permit, to be issued only to applicants who reside in the City or who pay earnings tax or merchants and manufacturers tax to the City, and who are eighteen years of age or older. This permit is good for play at all City tennis court facilities including the Dwight Davis Tennis Center.

2. Resident or taxpayer minor's tennis court permit, to be issued only to applicants who reside in the City or who pay earnings tax or merchants and manufacturers tax to the City, and who are twelve years of age or older and who are not eighteen years of age or older. This permit is good for play at all City tennis court facilities including the Dwight Davis Tennis Center.

3. Resident child's tennis court permit, to be issued only to applicants who reside in the City and who are twelve years of age or younger. This permit is good for play at all City tennis court facilities including the Dwight Davis Tennis Center.

4. Nonresident Dwight Davis Tennis Court permit, to be issued to applicants who are nonresidents of the City and who are of any age classification and the permit is only good at the Dwight Davis Tennis Center.

C. An annual fee for a recreational permit shall be charged as follows:

1. Resident or taxpayer adult, ten dollars.

2. Resident or taxpayer minor, three dollars.

3. Resident child, no charge.

D. All of the aforesaid recreational permits shall be issued from the office of the Director of the Depart-

ment of Parks, Recreation and Forestry at places as designated by the Department. A person's residence shall be proven by:

1. Voter registration;
2. Real property tax receipt;
3. Personal property tax receipt;
4. Income tax W-2 Form;
5. Driver's license.

Any of the above evidence of residence shall be accompanied by appropriate identification of the applicant. Any person not possessing any of the aforementioned evidence of residence proof, may prove evidence as to the residence of his or her parent or guardian or of the head of his or her household, as such term is defined for federal income tax purposes. A nonresident taxpayer shall prove his payment of the earnings tax or the merchants and manufacturers tax by producing a receipt for payment of either tax for the year preceding the year for which the permit is sought or by producing a tax return for the year.

While the resident child's tennis court permit is issued for no charge, no resident child will be allowed on a City tennis court unless he or she possesses a resident child's tennis court permit.

The Director of Parks, Recreation and Forestry shall promulgate and enforce schedules and rules regulating the use of City tennis courts by permittees. The rules may include time restrictions on use of tennis courts, which restrictions may vary for different permit categories.

No daily permits will be issued for any City tennis courts. (1960 C., § 222.041; 1994 C., § 22.12.050; Ord. No. 56919, § 1, 1975; Ord. No. 56733, § 1(part), 1974.)

22.12.060 Mark C. Steinberg Memorial Skating Rink schedules and charges.

The Commissioner of Recreation, with the approval of the Director of Parks, Recreation and Forestry, is authorized to establish schedules regulating the operation and charges for the use of the skating rink and recreation facilities. Activities shall include roller skating, ice skating, square dancing, badminton, volleyball, shuffleboard, recreation exhibitions, pageants, and other activities which in the opinion of the Director of Parks, Recreation and Forestry will be consistent with the motive of the gift from the Steinberg Charitable Trust as set forth in Ordinance No. 47487 relating to the Mark C. Steinberg Memorial Skating Rink. (1960 C., § 222.050; 1994 C., § 22.12.060; Ord. No. 49546, § 1, 1959.)

22.12.070 Sales tax.

Under and by the authority of RSMo 644.032 and 644.033, there is hereby imposed, subject, however, to the approval of the qualified voters as hereinafter provided, a sales tax of one-eighth of one percent (⅛%) on all retail sales made in the City of St. Louis for the purpose of funding local parks, and specifically, funding for new recreation facilities in parks, repairs and/or improvements to existing recreation facilities in parks, and recreation programs in recreation facilities in parks, in addition to any and all other sales tax allowed by law.

The provisions of RSMo 644.032 and 644.033 (2005) are adopted and incorporated herein by this reference as if fully set forth.

The tax imposed pursuant to the provisions of this section shall be a tax on all retail sales made in the City of St. Louis which are subject to taxation under the provisions of RSMo 144.010 to 144.525.

All revenue returned to the City of St. Louis from the tax authorized by this section pursuant to RSMo 644.032 and 644.033 shall be deposited in a special trust fund, hereby created, to be known as the Local Park Fund. All expenditures from the Local Park Fund shall be made pursuant to appropriation. (1994 C., § 22.12.070; Ord. No. 67195, §§ 1, 5—7, 2006.)

Chapter 22.16

PARK REGULATIONS

Cases:

Ordinance prohibiting the operation of motorcycles in city parks did not violate due process or equal protection guarantees. *American Motorcyclist Assn. v. City of St. Louis,* 622 S.W. 2d 267 (1981).

City Counselor Ops.: 8629, 8891, 9307, 9963

McQuillin:

28.54 Regulation of use of parks by public

Sections:

22.16.010 Mutilation or destruction of park property.
22.16.020 Molesting nests.
22.16.030 Posters.
22.16.040 Hitching animals.
22.16.050 Animals at large.
22.16.060 Leash required.

22.16.070 Speeches.
22.16.080 Walking on grass.
22.16.090 Disorderly conduct.
22.16.100 Reserved.
22.16.120 Speed limit.
22.16.130 Vehicles.
22.16.150 St. Louis Art Museum parking—Restrictions.
22.16.160 St. Louis Art Museum parking—Sunday.
22.16.170 St. Louis Art Museum parking—Permits.
22.16.180 St. Louis Art Museum parking—Penalty for violation.
22.16.190 Allowing persons, etc. who reserve City park amenities by permit issued by the Department of Parks, Recreation and Forestry to exclude from permitted area persons carrying firearms

22.16.010 Mutilation or destruction of park property.

No person shall break, cut, mutilate, injure, remove or carry away any tree, shrub, plant, flower, stone or stone work, bench, chair, seat, bower, stand, structure, fence or property, or thing whatsoever in, upon, or near any park, square or place in this City or any street, avenue or highway around the same; or disfigure any sward, gravel, sand, turf or earth or any trees, fence or structure therein or adjacent thereto. (1960 C., § 224.010; 1994 C., § 22.16.010; Ord. No. 49771, § 1(52 part), 1960.)

22.16.020 Molesting nests.

No person shall molest any bird, bird's nests, fish or animal or anything belonging to or kept therein. (1960 C., § 224.020; 1994 C., § 22.16.020; Ord. No. 49771, § 1(52 part), 1960.)

22.16.030 Posters.

No person shall paste or affix or inscribe any handbill, poster, card, device or inscription to or upon or against any fence, structure or property of or on such park, place, square or highway surrounding the same. (1960 C., § 224.030; 1994 C., § 22.16.030; Ord. No. 49771, § 1(52 part), 1960.)

22.16.040 Hitching animals.

No person shall fasten or hitch any animal to any tree, fence or structure in, around or upon the same, or the streets or avenues surrounding the same. (1960 C., § 224.040; 1994 C., § 22.16.040; Ord. No. 49771, § 1(52 part), 1960.)

City Counselor Ops.: 10184, 10216

22.16.050 Animals at large.

No person shall permit any domestic animal to go within any place, park, playground, square or park building. Any animal shall be taken up and impounded by the Master of the City Pound, and if not claimed within ten days the animal shall be sold. The fact of the animal being found within any place, park, playground, square or public building shall be evidence of permission by the owner thereof. (1960 C., § 224.050; 1994 C., § 22.16.050; Ord. No. 49771, § 1(52 part), 1960.)

22.16.060 Leash required.

Dogs or pet animals of any kind shall not be permitted in any park building or in any of the parks except the driving parks, and there only when fastened to or led by a leash not to exceed 6 feet in length. (1960 C., § 224.060; 1994 C., § 22.16.060.)

22.16.070 Speeches.

No person shall deliver any oration, address, speech, sermon or lecture therein without the written consent of the Director of Parks, Recreation and Forestry. (1960 C., § 224.070; 1994 C., § 22.16.070; Ord. No. 49771, § 1(52 part), 1960.)

22.16.080 Walking on grass.

No person shall walk or go upon any grass plot, lawn or other place prohibited by the Director of Parks, Recreation and Forestry. (1960 C., § 224.080; 1994 C., § 22.16.080; Ord. No. 49771, § 1(52 part), 1960.)

22.16.090 Disorderly conduct.

All disorderly or indecent conduct, the use of threatening, obscene or profane language, and all games, acts or demeanor calculated or tending to mar or disturb the feelings or enjoyment of the visitors attending public parks, places or squares are prohibited therein. (1960 C., § 224.090; 1994 C., § 22.16.090; Ord. No. 49771, § 1(53), 1960.)

22.16.100 Reserved.

Editor's Note:

Ord. No. 68342, § 1, adopted May 22, 2009, repealed § 22.16.100 which pertained to advertisement and derived from Ord. No. 49771, § 1(54), 1960 and § 224.100 of the 1960 Code.

22.16.120 Speed limit.

No person shall ride or drive any animal or vehicle therein except upon the proper roadways and drives of the public parks of the City, and at a rate of speed not exceeding twenty-five miles per hour. (1960 C., § 224.120; 1994 C., § 22.16.120; Ord. No. 49771, § 1(52 part), 1960.)

22.16.130 Vehicles.

No omnibus or express vehicle with or without passengers, nor any cart, dray, truck or other vehicle carrying goods or articles of any kind (except when required in the service of the Department of Parks, Recreation and Forestry), nor any hearse or procession of vehicles shall be permitted to use the drives or other roadways of any of the public parks of the City without the written consent of the Director of Parks, Recreation and Forestry. (1960 C., § 224.130; 1994 C., § 22.16.130; Ord. No. 49771, § 1(52 part), 1960.)

City Counselor Ops.: 8827, 10210

22.16.150 St. Louis Art Museum parking—Restrictions.

The parking of vehicles along the west curb line of the eastern-most island of the St. Louis Art Museum parking lot is hereby prohibited between the hours of eight a.m. and five p.m. except by permit issued by the Director of Parks, Recreation and Forestry to employees and staff of the City Art Museum to park in those spaces and areas designated by the Director. (1994 C., § 22.16.150; Ord. No. 56165, § 2, 1972.)

22.16.160 St. Louis Art Museum parking—Sunday.

The provisions of Section 22.16.150 shall not apply on Sunday. (1994 C., § 22.16.160; Ord. No. 56165, § 3, 1972.)

22.16.170 St. Louis Art Museum parking—Permits.

The Director of Parks, Recreation and Forestry shall issue permits to employees and staff of the City Art Museum designated by the director of the City Art Museum in the form of stickers to be placed on the lower left-hand corner of the rear window of the permittee's vehicle in order that it may be readily identified. All such permits shall be issued by the Director of Parks, Recreation and Forestry on recommendation of the director of the City Art Museum on a yearly basis and may be cancelled and renewed upon request of the director of the City Art Museum. (1994 C., § 22.16.170; Ord. No. 56165, § 4, 1972.)

22.16.180 St. Louis Art Museum parking—Penalty for violation.

Any person, firm, or corporation violating the provisions of Sections 22.16.150—22.16.180 shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than one dollar nor more than ten dollars. (1994 C., § 22.16.180; Ord. No. 56165, § 5, 1972.)

22.16.190 Allowing persons, etc. who reserve City park amenities by permit issued by the Department of Parks, Recreation and Forestry to exclude from permitted area persons carrying firearms

A. Persons, business enterprises, and other entities, organizations, and groups who reserve any of the City of St. Louis' park amenities by permit issued by the City's Department of Parks, Recreation and Forestry may, in accordance with RSMo 571.107(15), exclude from the permitted area persons carrying firearms regardless of whether carried concealed on or about their person and whether they hold a concealed carry permit or endorsement.

B. The Department of Parks, Recreation, and Forestry shall provide written notice to persons, business enterprises, and other entities, organizations, when they apply to reserve any of the City of St. Louis' park amenities by permit issued by the City's Department of Parks, Recreation and Forestry that they may, in accordance with 571.107(15) of the Revised Statutes of the State of Missouri, exclude from the permitted area persons carrying firearms regardless of whether carried concealed on or about their person and whether they hold a concealed carry permit or endorsement. (Ord. No. 71125, § 1, 5-4-2020.)

Chapter 22.18

CURFEW IN PARKS

For designation of parks, see Ch. 22.44.

Sections:

22.18.010 Persons prohibited in parks during designated hours.

22.18.020 Exceptions to curfew regulation.

22.18.025 Mt. Pleasant Park.

22.18.026 Curfew in Buder Park.

22.18.027 Marie Fowler Park and Phillip J. Lucier Park.

22.18.028 Chambers Park, Jet Banks Park, Norman Seay Park, Terry Park and Tiffany Park.

22.18.030 Parking motor vehicles in parks prohibited when.

22.18.040 Posting of restrictions.

22.18.050 Penalty for violation.

22.18.010 Persons prohibited in parks during designated hours.

No person shall loiter, idle, wander, stroll, play or otherwise be in or upon the confines of any public park or playground or the public areas immediately adjacent thereto between the hours of 10:00 p.m. and 6:00 a.m. throughout the year. (1994 C., § 22.18.010; Ord. No. 58262, § 1, 1981.)

22.18.020 Exceptions to curfew regulation.

The curfew imposed in Section 22.18.010 shall not apply to any person who is occupying such public park or playground under the provision of a special use permit granted by the Board of Public Service or the Director of Parks, Recreation and Forestry, nor shall it apply to persons using a public right-of-way as a means of continuous travel through such public park or playground from an entrance to a separate exit or to public employees while engaged in the performance of their duties. (1994 C., § 22.18.020; Ord. No. 58262, § 2, 1981.)

22.18.025 Mt. Pleasant Park.

A. Notwithstanding Ordinance 58262, no person shall loiter, idle, wander, stroll, play or otherwise be in or upon the confines of Mt. Pleasant Park or the public areas immediately adjacent thereto between the hours of 7:00 p.m. and 6:00 a.m. from November 1 through March 31, and between the hours of 9:00 p.m. and 6:00 a.m. the rest of the year.

B. The curfew imposed in Subsection A of this section shall not apply to any person who is occupying such park under the provision of a permit granted by the Board of Public Service or the Director of Parks, Recreation, and Forestry or to public employees while engaged in the performance of their duties. (1994 C., § 22.18.025; Ord. No. 63312, §§ 1, 2, 1994.)

22.18.026 Curfew in Buder Park.

Notwithstanding the provisions of any other ordinance to the contrary, no person shall idle, wander, stroll, play or otherwise be in or upon the confines of Buder Park or the public areas immediately adjacent thereto between the hours of 7:00 p.m. and 10:00 a.m. throughout the year. (1994 C., § 22.18.026; Ord. No. 68699, § 2, 7-2-2010; Ord. No. 66988, § 1, 2005.)

22.18.027 Marie Fowler Park and Phillip J. Lucier Park.

A. Notwithstanding Ordinance 58262, no person shall idle, wander, stroll, play or otherwise be in or upon the confines of Marie Fowler Park and Phillip J. Lucier Park or the public areas immediately adjacent thereto between the hours of 6:00 p.m. and 6:00 a.m. from November 1 through March 31, and between the hours of 7:00 p.m. and 6:00 a.m. the rest of the year.

B. The curfew imposed in Subsection A of this section shall not apply to any person who is occupying such park under the provision of a permit granted by the Board of Public Service or the Director of Parks, Recreation and Forestry or to public employees while engaged in the performance of their duties. (1994 C., § 22.18.027; Ord. No. 69374, §§ 1, 2, 1-25-2013.)

22.18.028 Chambers Park, Jet Banks Park, Norman Seay Park, Terry Park and Tiffany Park.

Notwithstanding the provisions of any other ordinance to the contrary, no individual shall idle, wander stroll, play, or otherwise be in or upon the premises of Chambers Park, Jet Banks Park, Norman Seay Park, Terry Park, and Tiffany Park, and the public areas immediately adjacent to said parks daily, throughout the year, between the hours of 7:00 p.m. and 7:00 a.m. (Ord. No. 71192, § 1, 7-24-2020.)

22.18.030 Parking motor vehicles in parks prohibited when.

No person shall park, or cause to be parked, any motor vehicle in any public park or playground between the hours of 10:00 p.m. and 6:00 a.m. throughout the year, except in connection with activities exempted by Section 22.18.020. (1994 C., § 22.18.030; Ord. No. 58262, § 3, 1981.)

22.18.040 Posting of restrictions.

The Department of Parks, Recreation and Forestry shall post a permanent and conspicuous notice of the restrictions of the use of public parks and playgrounds provided by this chapter in every public park and playground in the City. (1994 C., § 22.18.040; Ord. No. 58262, § 4, 1981.)

22.18.050 Penalty for violation.

Any person violating the provisions of this chapter shall, upon being found guilty thereof, be punished by a fine of not less than $1.00 nor more than $500.00. (1994 C., § 22.18.050; Ord. No. 58262, § 6, 1981.)

Chapter 22.20

CONCESSIONS

McQuillin:

28.53, 28.54 Park concessions

Sections:

22.20.010 Term—Rules and regulations.

22.20.020 Advertising for bids.

22.20.030 Performance bond.

22.20.040 Rent—Premises inspection.

22.20.050 Forfeiture of privileges.

22.20.060 Skate concessions—Terms.

22.20.070 Skate concessions—Advertising for bids.

22.20.080 Skate concessions—Bond.

22.20.090 Premises inspection.

22.20.010 Term—Rules and regulations.

The Board of Public Service is authorized and empowered to let to the highest responsible bidder concession privileges in the public parks of the City for terms not to exceed five years under rules and regulations drawn up by the Director of Parks, Recreation and Forestry and approved by the Board of Public Service. (1960 C., § 225.010; 1994 C., § 22.20.010; Ord. No. 49771, § 1(11 part), 1960.)

City Counselor Ops.: 8629, 8891, 9067, 9307, 10484

22.20.020 Advertising for bids.

Before letting concession privileges the Board shall advertise for bids in the City Journal at least ten days before the opening of bids. The board shall have the authority to reject any and all bids. In case all bids are rejected, the Board shall immediately proceed to advertise anew for bids and to continue to do so until the concession privileges are let according to the terms of Sections 22.20.010—22.20.050. Prior to advertising for bids, the Board of Public Service shall designate the public parks in which authorization to operate the concession privileges shall be granted, the type and character of the concessions, the space to be occupied, such as buildings and other facilities, by the licensee, and shall refer to same in the advertisement. (1960 C., § 225.020; 1994 C., § 22.20.020; Ord. No. 49771, § 1(11 part), 1960.)

City Counselor Ops.: 8629, 8891, 9067, 9307, 10484

22.20.030 Performance bond.

The successful bidders shall execute and file in the office of the City Register within thirty days after their bid is accepted performance bonds to the City in the sum equal to twenty-five percent of the estimated annual contractual payments by the successful bidders to the City (but in no case shall the bonds be in the sum of less than one thousand dollars), with good and sufficient sureties to be approved by the Comptroller conditioned for the prompt payment to the City of all sums agreed to be paid in consideration of the grant of the privileges, and further conditioned that the premises will at all times be kept in a neat, clean, sanitary and orderly condition to the satisfaction of the Director of Parks, Recreation and Forestry, and that only reasonable prices will be charged. (1960 C., § 225.030; 1994 C., § 22.20.030; Ord. No. 49771, § 1(11 part), 1960.)

City Counselor Ops.: 8629, 8891, 9067, 9307

22.20.040 Rent—Premises inspection.

In all cases the rents are to be paid in advance.

The premises shall at all times be open to the inspection of the Director of Parks, Recreation and Forestry. (1960 C., § 225.040; 1994 C., § 22.20.040; Ord. No. 49771, § 1(11 part), 1960.)

City Counselor Ops.: 8629, 8891, 9067, 9307

22.20.050 Forfeiture of privileges.

Any failure on the part of the licensee of the privileges to comply with any of the terms or provisions of Sections 22.20.010—22.20.050, or of any contract or bond made in pursuance thereof, shall work a forfeiture of the privileges granted and upon forfeiture the Director of Parks, Recreation and Forestry shall take possession of the premises and exclude said licensee therefrom. (1960 C., § 225.050; 1994 C., § 22.20.050; Ord. No. 49771, § 1(11 part), 1960.)

City Counselor Ops.: 8629, 8891, 9067, 9307

22.20.060 Skate concessions—Terms.

The Board of Public Service is authorized and empowered to let to the highest and best bidders the privileges of selling, renting, storing and/or repairing roller skates and ice skates and their accessories at the Mark C. Steinberg Memorial Skating Rink in the build-

ing provided for such use in Forest Park for a term not less than three years nor more than five years. Awards may be made and contracts entered into for such privileges within six months prior to the time that the skating rink and building shall be ready for operation or any time thereafter. The advertising, bidding and letting of the contract or contracts for such privileges shall be pursuant to rules and regulations drawn up by the Commissioner of Parks and Recreation consistent with the terms of Sections 22.20.010—22.20.090 and approved by the Board of Public Service. (1994 C., § 22.20.060; Ord. No. 48317, § 1, 1957.)

22.20.070 Skate concessions—Advertising for bids.

Before letting the contract or contracts for such privileges, the Board of Public Service shall advertise for bids in the City Journal at least ten days before the opening of the bids. The Board shall have the authority to reject any and all bids. In case all bids are rejected, the Board shall immediately proceed to advertise anew for bids, and shall continue to do so until the privileges are let according to the terms of Sections 22.20.060—22.20.090. Prior to advertising for bids, the Board of Public Service shall designate the space to be occupied by the successful bidders, the numbers, characters, and sizes of booths or counters, owned by the City, and to be used by the bidders, and shall refer to same in the advertisements. In all cases the rents are to be paid in advance. (1994 C., § 22.20.070; Ord. No. 48317, § 2, 1957.)

22.20.080 Skate concessions—Bond.

The successful bidders shall execute and file in the office of the City Register, within thirty days after their bids are accepted, penal bonds to the City in the sum of one thousand dollars each, with good and sufficient sureties to be approved by the Mayor and Board of Aldermen conditioned for the prompt payment to the City of all sums agreed to be paid in consideration of the grant of the privileges, and further conditioned that the premises will at all times be kept in a neat, clean, sanitary and orderly condition, to the satisfaction of the Commissioner of Parks and Recreation, and that they will charge only prices for sales, rentals and services as are approved by the Commissioner of Parks and Recreation subject to the approval of the Director

of Public Welfare. (1994 C., § 22.20.080; Ord. No. 48317, § 3, 1957.)

22.20.090 Premises inspection.

The premises shall at all times be open to the inspection of the Commissioner of Parks and Recreation. Any failure on the part of the successful bidders for the privileges to comply with any of the terms or provisions of Sections 22.20.060—22.20.090, or of any contract or bond made in pursuance thereof, shall work a forfeiture of the privileges granted, and upon forfeiture the Commissioner of Parks and Recreation shall take possession of the premises and exclude said successful bidders therefrom. (1994 C., § 22.20.090; Ord. No. 48317, § 4, 1957.)

Chapter 22.22

BEVERAGE CANS OR BOTTLES IN PUBLIC PLACES

Sections:

22.22.010 Definitions.
22.22.020 Offenses.
22.22.030 Exceptions.
22.22.040 Penalty.

22.22.010 Definitions.

The following words and phrases as used in this chapter shall have the following meanings, unless the context otherwise requires:

A. The term "civic festival" means any picnic, fair, festival, carnival, flea market or other event to which the general public is invited and for which a Board of Public Service permit has been issued for use of the public streets, parks or other public property consisting of more than three City blocks, or one acre or more in the case of a park or other public place.

B. The term "beverage container" means any metal, glass bottles, plastic, leather or animal skin container, can, bottle, jug or barrel, sealed or unsealed, designed or used for containing liquids intended for human consumption.

C. The term "alcoholic beverage" means "intoxicating liquor" as defined in RSMo 311.020 and "non-intoxicating beer" as defined in RSMo 312.010-2. (1994 C., § 22.22.010; Ord. No. 59402, § 2, 1985; Ord. No. 58559, § 1, 1982.)

Editor's Note:

RSMo 312.010 has been repealed. The definition of intoxicating liquor in

RSMo 311.020 includes all beverages containing in excess of one-half of one percent alcohol by volume.

22.22.020 Offenses.

No person shall use, distribute, or possess a beverage container containing alcoholic beverages on a public street, park or other public place within the boundaries of a civic festival. (1994 C., § 22.22.020; Ord. No. 59402, § 3, 1985; Ord. No. 58559, § 2, 1982.)

22.22.030 Exceptions.

The provisions of this chapter shall not apply to:

A. Any person with concession privileges granted by the Board of Public Service for said civic festival.

B. Any person possessing a beverage container containing alcoholic beverages for immediate consumption on the premises which was obtained from an authorized concessionaire. (1994 C., § 22.22.030; Ord. No. 59402, § 4, 1985; Ord. No. 58559, § 3, 1982.)

22.22.040 Penalty.

Any person who violates any provision of this chapter shall upon conviction be punished by a fine of not more than five hundred dollars ($500.00) or imprisonment in a medium security institution for not more than ninety days or both such fine and imprisonment. (1994 C., § 22.22.040; Ord. No. 59402, § 5, 1985; Ord. No. 58559, § 4, 1982.)

Chapter 22.23

BEVERAGE BOTTLES IN PUBLIC PARKS

Sections:

22.23.010 Definitions.
22.23.020 Offenses designated.
22.23.030 Permitted acts.
22.23.040 Penalty for violation.

22.23.010 Definitions.

The following words and phrases as used in this chapter shall have the following meanings, unless the context otherwise requires:

A. The term "public park" means any park, park area, historic site, playground, swimming pool, garden or other area owned or used by the City for recreational purposes and facilities in connection therewith or which permits the general public to generally use its facilities on a regular basis.

B. The term "beverage bottle" means any glass container, sealed or unsealed, originally designed for retail sale and capable of holding liquid intended for human consumption. (1994 C., § 22.23.010; Ord. No. 59894, § 1, 1986; Ord. No. 59178, § 1, 1984.)

22.23.020 Offenses designated.

A. No person shall use, or possess with intent to use, a beverage bottle in a public park.

B. No person shall distribute or possess with intent to distribute a beverage bottle in a public park. (1994 C., § 22.23.020; Ord. No. 59178, § 2, 1984.)

22.23.030 Permitted acts.

The following acts shall not be unlawful:

A. Any person carrying sealed beverage bottles on an uninterrupted trip through the park;

B. Any person with an infant in their custody carrying a bottle containing liquid prepared for immediate consumption by an infant;

C. Any person with concession privileges granted by the Board of Public Service, possessing, distributing, or possessing with intent to distribute beverage bottles containing liquid for immediate consumption on the premises;

D. Any person possessing a beverage bottle, containing liquid for immediate consumption on the premises, obtained from an authorized concessionaire. (1994 C., § 22.23.030; Ord. No. 59178, § 3, 1984.)

22.23.040 Penalty for violation.

Any person who violates any provision of this chapter shall upon conviction be punished by a fine of not more than five hundred dollars ($500.00) or imprisonment in a medium security institution for not more than ninety days, or both such fine and imprisonment. (1994 C., § 22.23.040; Ord. No. 59178, § 4, 1984.)

Chapter 22.24

USE OF FACILITIES BY ORGANIZED GROUPS

City Counselor Ops.: 8629, 8891, 9307

Sections:

22.24.010 Admission prices.
22.24.020 Time and location.
22.24.030 Stands—In addition to City stands.
22.24.040 Stands—Location.
22.24.050 City facilities.
22.24.060 Term of permit.
22.24.070 Conflict of dates.
22.24.080 Insurance policy.
22.24.090 Charges for additional expenses to City.
22.24.100 Rules and regulations.
22.24.110 Appeals.

22.24.010 Admission prices.

The Commissioner of Recreation may authorize any nonprofit organization. association, or federation which regularly utilizes the parks or other recreational facilities of the City, and which in the judgment of the Commissioner is conducting an organized athletic or recreational program which contributes to the general health, welfare and recreation of the citizens of the City, to enclose a playing field and to erect or utilize stands, seats or other facilities, and to charge an admission price for championship, exhibition or special benefit games in any public park or recreational facility. (1960 C., § 223.010; 1994 C., § 22.24.010; Ord. No. 49771, § 1(19), 1960; Ord. No. 47007, § 1, 1954.)

McQuillin:

28.54 Regulation of use of parks by public

22.24.020 Time and location.

The time and location of any such games so authorized by the Commissioner shall be fixed by the Commissioner and the admission charge shall not be in excess of the maximum amount fixed by the Commissioner. (1960 C., § 223.020; 1994 C., § 22.24.020; Ord. No. 49771, § 1(20), 1960; Ord. No. 47007, § 2, 1954.)

22.24.030 Stands—In addition to City stands.

The stands, seats and other facilities, the erection of which is authorized in this chapter, shall be in addition to those furnished by the Division of Parks and Recreation. (1960 C., § 223.030; 1994 C., § 22.24.030; Ord. No. 47007, § 3, 1954.)

22.24.040 Stands—Location.

These stands, seats and other facilities so erected must be approved by the Commissioner of Parks and Recreation and Building Commissioner and be arranged and located on sites selected by the Commissioner of Parks and Recreation. (1960 C., § 223.040; 1994 C., § 22.24.040; Ord. No. 47007, § 4, 1954.)

22.24.050 City facilities.

The Commissioner may authorize the use of any stands, seats or other equipment and facilities belonging to the City in connection with any such games so authorized. (1960 C., § 223.050; 1994 C., § 22.24.050; Ord. No. 49771, § 1(21), 1960; Ord. No. 47007, § 5, 1954.)

22.24.060 Term of permit.

The permits granted to any one organization shall not exceed five days annually in any one branch of sport. (1960 C., § 223.060; 1994 C., § 22.24.060; Ord. No. 49771, § 1(22), 1960; Ord. No. 47007, § 6, 1954.)

22.24.070 Conflict of dates.

If a conflict regarding requests of dates exists between two or more organizations the Commissioner should distribute the dates as equally as possible or distribute them upon mutual agreement of all concerned. (1960 C., § 223.070; 1994 C., § 22.24.070; Ord. No. 47007, § 7, 1954.)

22.24.080 Insurance policy.

No permit shall be granted until such time as an insurance policy is filed with the Commissioner designating the City as a "named insured" in the policy. The amount and type of insurance coverage to be provided shall be subject to the approval of the Commissioner. (1960 C., § 223.080; 1994 C., § 22.24.080; Ord. No. 49771, § 1(23), 1960; Ord. No. 47007, § 8, 1954.)

22.24.090 Charges for additional expenses to City.

The Commissioner is authorized to charge the applicant such amount as will in the judgment of the Commissioner reimburse the City for any additional expense incurred by the City in connection with the holding of any championship exhibition or benefit game. (1960 C., § 223.090; 1994 C., § 22.24.090; Ord. No. 49771, § 1(24), 1960; Ord. No. 47007, § 9, 1954.)

22.24.100 Rules and regulations.

The Commissioner, with the approval of the Director of Parks, Recreation and Forestry, shall establish rules and regulations effectuating Sections 22.24.010, 22.24.020, 22.24.050, 22.24.060, 22.24.080 and 22.24.090, inclusive. (1960 C., § 223.110; 1994 C., § 22.24.100; Ord. No. 49771, § 1(25), 1960; Ord. No. 47007, § 10, 1954.)

22.24.110 Appeals.

Any person aggrieved by the issuance of, or by a denial of a permit, may appeal to the Director of the Department of Public Welfare, who shall summarily hear and determine the same. (1994 C., § 22.24.110; Ord. No. 47007, § 11, 1954.)

Chapter 22.28

ZOOLOGICAL PARK

RSMo:

RSMo 90.650 (2016) Zoological park—Protective ordinances

Sections:

22.28.010 Name—Location.

22.28.020 Prohibited acts.

22.28.030—22.28.050 Reserved.

22.28.010 Name—Location.

There shall be a public zoological park to be known as the "St. Louis Zoological Park," located within the following-described boundaries, as follows:

Beginning at a point on the southerly line of Washington Drive at the intersection of Washington and Concourse Drives; thence in a westerly and northerly direction along the southerly line of said Washington Drive to the intersection of Washington and Government Drives; thence in a southerly and westerly direction along the southerly line of Government Drive to a point at the intersection of the said southerly line of Government Drive with a line four hundred feet west of, and parallel to, a certain established section line running in a northerly and southerly direction; said section line being one-half mile, more or less, eastwardly from Skinker Road and intersecting at an angle of ninety degrees with the south line of Lindell Boulevard extended westwardly from Union Boulevard at a point one and one-half miles westwardly from the intersection of the said south line of Lindell Boulevard with the west line of Kingshighway Boulevard; thence in a southerly direction along a line parallel to, and four hundred feet west of the aforementioned section line to the northerly line of Wells Drive; thence in an easterly direction along the said northerly line of Wells Drive to the intersection of Wells and Concourse Drives; thence in a northerly direction along the westerly line of Concourse Drive to the point of beginning. (1948 C., Ch. 48, § 62; 1960 C., § 226.010; 1994 C., § 22.28.010; Ord. No. 51333, § 1, 1962.)

Charter:

Art. XIV Art museum and zoological park

22.28.020 Prohibited acts.

No person shall break, cut, mutilate, injure, remove or carry away any tree, shrub, plant, flower, stone or stonework, bench, chair, seat, bower, stand, structure, fence or property, or thing whatsoever in or upon the zoological grounds; nor molest any bird, bird's nest, fish or animal, or anything belonging to or kept therein, or paste or affix or inscribe any handbill, poster, card, device or inscription to, upon or against any fence, structure or property of or on the zoological grounds,

or disfigure any sward, gravel, sand, turf or earth, or any tree, fence or structure therein or adjacent thereto, or ride, drive or bring in or upon the zoological grounds, dogs, pet animals of any kind, nor shall any person deliver any oration, address, speech, sermon or lecture therein without the written consent of the Zoological Board of Control, or permit any domestic animal to go or run at large in the zoological grounds, and all such animals shall be taken up and impounded, and if not claimed within ten days, sold, and the fact of the animal being found running at large shall be evidence of permission by the owner thereof.

No person shall parade, exhibit or distribute any advertisement, circular or handbill therein, nor any peddler or petty dealer sell or in any manner dispose of any article in the zoological grounds, without the consent of the Board. (1948 C., Ch. 48, § 63; 1960 C., § 226.020; 1994 C., § 22.28.020.)

22.28.030—22.28.050 Reserved.

Editor's note:

Ord. No. 72041, § 1, adopted October 30, 2025, repealed former § 22.28.030, and § 2 of the ordinance repealed former §§ 22.28.040 and 22.28.050. Former § 22.28.030 pertained to the composition, term, compensation and organization of the Zoological Board of Control, and derived from the 1948 Code, Ch. 48, § 64; the 1960 Code, § 226.030; the 1994 Code, § 22.28.030; and Ord. No. 49920 of 1960. Former § 22.28.040 pertained to the moneys of the Zoological Board of Control, and derived from the 1948 Code, Ch. 48, § 65; the 1960 Code, § 226.040; and the 1994 Code, § 22.28.040. Former § 22.28.050 pertained to the annual report of the Zoological Board of Control, and derived from the 1948 Code, Ch. 48, § 66; the 1960 Code, § 226.050; and the 1994 Code, § 22.28.050.

Chapter 22.32

PARK RENTAL AND LEASING

McQuillin:

28.53 Leases, licenses and permits

Sections:

22.32.010 Exclusive use prohibited.
22.32.020 Cancellation of agreements.
22.32.030 Temporary permits.

22.32.010 Exclusive use prohibited.

No department, board, commission or officer of the City shall let, lease, rent or issue a permit or a license to any private corporation, organization, association, person or club any part or portion of any public park owned or operated by the City for the establishment or maintenance of a sporting or private athletic club or both for the exclusive use of such corporation, organization, association, person or club or its membership. (1960 C., § 229.010; 1994 C., § 22.32.010; Ord. No. 51519, § 1, 1962.)

McQuillin:

28.53 Leases, licenses and permits

22.32.020 Cancellation of agreements.

Any agreement, contract, lease or permit heretofore entered for the letting, leasing, renting, licensing, or permitting the use of any portion of any public park for the establishment or maintenance of a sporting or private athletic club or both for the exclusive use of the membership of any private corporation, organization, association, person or club shall and is terminated on the 31 day of December, 1964. All personal property owned by or belonging to such corporation, person, organization, association or club or members thereof shall be removed from such premises on or before the 31 day of December, 1964. (1960 C., § 229.020; 1994 C., § 22.32.020; Ord. No. 51519, § 2, 1962.)

22.32.030 Temporary permits.

The provisions of this chapter shall not be construed as prohibiting the granting of temporary permits for use of public park facilities by any athletic associations or sporting clubs on a temporary basis. (1960 C., § 229.030; 1994 C., § 22.32.030; Ord. No. 51519, § 3, 1962.)

Chapter 22.36

DWIGHT F. DAVIS TENNIS TOURNAMENT CENTER

City Counselor Ops.: 9585

Sections:

22.36.010 Created—Location.
22.36.020 Fund.
22.36.030 Contract.

22.36.010 Created—Location.

There is created the Dwight F. Davis Tennis Tournament Center. The Tennis Tournament Center shall be located in Forest Park in the City and shall be under the jurisdiction of the Department of Parks, Recreation and Forestry, which shall be responsible for the staffing, operation and maintenance of the tournament center. This tournament center shall consist of the

number of tennis courts as is practicable and a stadium for educational, recreational, and spectator use. (1994 C., § 22.36.010; Ord. No. 52952, § 1, 1965.)

22.36.020 Fund.

The Comptroller is authorized and directed to create a separate fund account to be known as the "Dwight F. Davis Tennis Tournament Center Fund." All moneys received by the City for the purposes set forth in this chapter shall be deposited in the fund, and all moneys appropriated by the City for the purposes described shall be deposited in the fund. The moneys in the fund shall be kept separate and apart from all other moneys and things of value of the City. The Comptroller is authorized to disperse the moneys in the fund for the purposes set forth in this chapter. (1994 C., § 22.36.020; Ord. No. 52952, § 2, 1965.)

22.36.030 Contract.

The Mayor and the Comptroller shall be authorized and directed to enter into and perform on behalf of the City an agreement by and between the City and the Dwight F. Davis Memorial Tennis Center (a not-for-profit corporation) (hereinafter referred to as "center"). The contract shall provide:

A. That the center shall conduct fund-raising activities for the planning, creating, developing, and constructing of the tennis tournament center;

B. That the City will when financially able assist in the cost of the tournament center;

C. That a fund be created by the center for the moneys collected;

D. That the center will donate and transfer to the City the money so collected;

E. That the center will keep an accurate account of moneys received and disbursed and the Comptroller shall cause an audit at his convenience;

F. That the City accept the moneys so collected and place those moneys in a separate account to be known and designated as the "Dwight F. Davis Tennis Tournament Center Fund";

G. That the City will cause the planning and construction of the tennis tournament center and the center shall have opportunity to object in writing to the plans and, further, that the Board of Public Service shall settle any dispute which shall arise as a result of the plans;

H. That the City will retain all right, title, and interest in the tennis tournament center;

I. That no benefit or profit or other thing of value will inure to any individual, person, firm or corporation;

J. For the disposition of the surplus of funds through an educational or memorial grant connected with the operation and educational and recreational features of the tennis tournament center; and

K. Other things as are deemed necessary and proper for the furtherance of the intent expressed herein. (1994 C., § 22.36.030; Ord. No. 52952, § 3, 1965.)

Chapter 22.40

PARK ASSEMBLY PERMITS

McQuillin:

28.53 Leases, licenses and permits

Sections:

22.40.010 Permit—Bond—Required.

22.40.020 Bond—Type.

22.40.030 Political assemblies.

22.40.040 Penalty for violation.

22.40.010 Permit—Bond—Required.

Individuals, groups or organizations planning assemblies, meetings or gatherings in City parks at which attendance of one hundred or more persons is expected or solicited shall apply for a permit for the use of a designated area in the parks. Before issuance of a permit, a bond shall be posted in an amount to be determined by the Director of Parks sufficient to cover the repair of damages to the park fixtures and premises at the location to be utilized, including trees, turf and shrubs, the reasonable cost of cleaning the premises from extraordinary debris and litter, and the expense incurred for additional policing and traffic control. If the park area for which a permit has been granted is left in good condition, ordinary wear and tear excepted, and no abnormal expenses have been incurred by reason of the usage, the bond so posted shall be cancelled and obligations thereunder shall be void, otherwise it shall remain in full force and effect to satisfy damages, expenses or cost of repair or restoration. (1994 C., § 22.40.010; Ord. No. 56790, § 1, 1974.)

McQuillin:

28.53 Leases, licenses and permits

22.40.020 Bond—Type.

The bond requirement specified in Section 22.40.010 may be satisfied with the posting of a bond secured

from a recognized bonding or insurance company, a cash bond or by the written assurance of at least three responsible persons who jointly or severally agree to pay the reasonable costs of damage, cleaning of debris, and additional policing and traffic control. Such determination of the type of bond required shall be in the discretion of the Director of Parks, Recreation and Forestry. (1994 C., § 22.40.020; Ord. No. 56790, § 2, 1974.)

22.40.030 Political assemblies.

Political assemblies, meetings or gatherings shall be permitted in City parks under the same terms and conditions. (1994 C., § 22.40.030; Ord. No. 56790, § 3, 1974.)

22.40.040 Penalty for violation.

Any individual or individuals or the officers of any organization arranging assemblies, meetings or gatherings in City parks who shall fail to comply with the provisions of this chapter shall be guilty of a misdemeanor and upon conviction thereof shall be fined not less than the sum of twenty-five dollars nor more than the sum of five hundred dollars. (1994 C., § 22.40.040; Ord. No. 56790, § 4, 1974.)

Chapter 22.42

PARK, SQUARE OR PLAZA LAND USE

Sections:

22.42.010 Definitions.
22.42.020 Use authorization.
22.42.030 Lease required.
22.42.040 Lease required—Exceptions.
22.42.050 Lease requirements.
22.42.060 Alteration or construction—Permit required.
22.42.070 Permit application—Granting.
22.42.080 Permit application—Review.
22.42.090 Permit application—Report to Clerk.
22.42.100 Copy of report to Board members.
22.42.110 Permit—Issuance procedure.
22.42.120 Permit—Resolution to grant or deny application—Hearing.
22.42.130 Permit—Resolution to grant or deny application—Second reading.
22.42.140 Permit—Application modification.

22.42.010 Definitions.

As used in this chapter, the following terms have the following meanings:

A. "Land" means the entire physical territory within all public parks, plazas and squares owned by or hereafter acquired or established by the City and the air space above and the earth or water below the surface thereof, including permanent or temporary buildings or structures of any kind and parking lots or facilities of any kind.

B. "Person" means an individual person, partnership, association, group, corporation, trust, political subdivision, board, or any other legal entity of any kind whatsoever.

C. "Use" means to conduct any activity upon, to have the right to occupy to the exclusion of others or to exclude others (whether or not exercised), to have the right to exclude others from using, or to have the right to construct or maintain any permanent or temporary building, structure or parking lot or facility, on, above, or below. (1994 C., § 22.42.010; Ord. No. 59741, § 1, 1986.)

22.42.020 Use authorization.

On and after the effective date of this chapter, no person (other than the City for park or recreation purposes) shall be authorized or permitted to use any land within a public park, square or plaza owned by or hereafter acquired or established by the City except as provided by this chapter. (1994 C., § 22.42.020; Ord. No. 59741, § 2, 1986.)

Editor's Note:

Ordinance 59741 was passed March 4, 1986.

22.42.030 Lease required.

Except as provided in Section 22.42.040, no person shall be permitted to use any land except pursuant to a lease authorized by ordinance which lease complies with the requirements of Section 22.42.050. No lease of any land shall be authorized or executed pursuant to Section 5.04.090. (1994 C., § 22.42.030; Ord. No. 59741, § 3, 1986.)

22.42.040 Lease required—Exceptions.

Section 22.42.030 shall not apply to:

A. Persons using land in a park, square, or plaza for thirty (30) days or less, which use does not involve construction of a building of any kind which is intended to be permanent, or of a parking lot; such uses may be permitted by the Board of Public Service or by the Director of Parks, Recreation and Forestry pursuant to and in compliance with the City Charter;

B. Land used on the effective date of this chapter by any person pursuant to a valid permit of the Board of Public Service or of the Director of Parks, Recreation and Forestry, for the term of such permit or for the term of any renewal of such permit to such person or to the lawful successors or assigns of such person, for use of the same land, on conditions as to use of the land and operations thereon which are substantially identical to the present conditions of such permit, subject, however, to the provisions of Section 22.42.060;

C. Land used on the effective date of this chapter by any person pursuant to statute, ordinance, or lease,

for the term if any authorized by such statute, ordinance, or lease subject, however to the provisions of Section 22.42.060;

D. Persons engaging in athletic or recreational activities on a daily or seasonal basis pursuant to valid permits of the Director of Parks, Recreation and Forestry;

E. Persons using land pursuant to a valid concession contract with the City;

F. Persons leasing buildings in the public parks pursuant to Section 22.04.100;

G. St. Louis 2004 Corporation during the period May 1 through November 15, 2004, for the erection and operation of a ferris wheel in Forest Park, under a permit issued by the Board of Public Service for the same location, and with terms, conditions and requirements substantially similar to those set forth in Exhibit A to Ordinance 65675, and/or the permit issued for the ferris wheel for December 11, 2003, through January 9, 2004, which permit is approved by the City Counselor's Office as consistent herewith; provided, that the insurance required in such a permit shall be as follows:

1. At no cost to the City, St. Louis 2004 shall procure, or shall cause Premier Entertainment Corporation ("PEC"), lessee of the ferris wheel, and the operator of the ferris wheel, to procure and maintain on file with the City's Comptroller at all times during the term of this permit and prior to the commencement of installation of the ferris wheel, insurance and certificates or other evidence of such insurance as hereafter specified. The policies shall name "The City of St. Louis and its officers, agents, and employees" as additional insureds and be issued by financially sound insurers approved by the City's Comptroller's Office. Said insurance shall be primary and non-contributory to the City.

2. Insurance in the initial minimum amounts, below, shall be provided:

a. Worker's compensation: Missouri statutory.

b. Comprehensive liability (to include premises, operations, products, and completed operations and personal and bodily injury including death):

	Each Occurrence	Aggregate
Combined bodily injury and property damage	$1,000,000.00	$5,000,000.00 (ferris wheel operator)
	$1,000,000.00	Unlimited (PEC)
Umbrella coverage	$5,000,000.00 (ferris wheel operator)	$19,000,000.00 (PEC)

3. St. Louis 2004 shall also use its best efforts (not requiring expenditure of funds) to cause the City of St. Louis, its officers, employees and agents to be named as additional insureds on all policies of insurance on the ferris wheel carried by the owner of the ferris wheel, and, shall also cause the City of St. Louis, its officers, employees and agents to be named as additional insureds during the term of this permit on all policies of insurance on the ferris wheel carried by itself or PEC, or its subsidiaries or affiliates, other than and in addition to the policies required by Subsection G.2 of this section, and shall file certificates relating to such additional policies in like manner as the certificates required for the policies required by Subsection G.2. (1994 C., § 22.42.040; Ord. No. 66253, § 1, 2004; Ord. No. 59741, § 4, 1986.)

22.42.050 Lease requirements.

Any lease authorized pursuant to Section 22.42.030 shall:

A. Have been reviewed and favorably recommended in writing to the final form thereof by the Board of Public Service prior to the adoption of the ordinance authorizing its execution;

B. Provide for fair and reasonable consideration to the City;

C. Provide that all rental payments under such lease shall be held by the Comptroller in an account for the use and benefit of the Department of Parks, Recreation and Forestry;

D. Provide for immediate termination and forfeiture of such lease in the event of any breach by the lessee of any provision thereof;

E. Contain express acknowledgements by the lessee that neither expenditures of funds by the lessee, nor construction of improvements, if any, by the lessee, nor any representation by any City official or employee, shall create any valid expectancy or right in the lessee to renewal of such lease, or obligation by the City to renew such lease, and that the lessee's performance of all its undertakings in such lease, over the term of the lease, is a valid factor for consideration by the City in determining whether such lease shall be renewed;

F. Provide that any and all construction or work on the leased premises by the lessee shall be done in complete compliance with all applicable City, state and federal codes and pursuant to plans and specifications approved by the Board of Public Service, the Division of Heritage and Urban Design and subject to approval

by or permit of any other City department or agency whose approval or permission may be required under the City Charter or ordinance prior to the commencement of any construction or work;

G. Require submission by the lessee to the Director of Parks, Recreation and Forestry of a written annual report describing in detail the activities and operations of the lessee on the land in the preceding year;

H. Contain such other provisions as are appropriate to the protection of the City's interests;

I. Be approved by the City Counselor as to form and as being in all respects consistent with this chapter prior to the adoption of the ordinance authorizing its execution. (1994 C., § 22.42.050; Ord. No. 59741, § 5, 1986.)

22.42.060 Alteration or construction—Permit required.

Whenever any person using land pursuant to a permit or authorization described in Section 22.42.040.B or C proposes to change the actual use of all or any part of such land, or to make any alteration, including construction, demolition, or an increase in height, of any permanent or temporary structure or parking lot on such land, or to excavate beneath any existing temporary or permanent building or parking lot on such land, such person shall apply for a permit to the Board of Public Service. (1994 C., § 22.42.060; Ord. No. 59741, § 6, 1986.)

22.42.070 Permit application—Granting.

A. Any applications required by Section 22.42.060 for permits to make or perform interior alterations, routine maintenance, replacement of existing facilities in kind, general beautification, or an alteration expressly contemplated or authorized in the permit, statute, ordinance or lease under which the applicant is using the land, shall be granted or denied by the Board of Public Service in accordance with its customary procedures.

B. A copy of any application required by Section 22.42.060 which is not expressly described in Subsection A of this section shall be delivered immediately upon receipt by the Secretary of the Board of Public Service to the Clerk of the Board of Aldermen. (1994 C., § 22.42.070; Ord. No. 59741, § 7, 1986.)

22.42.080 Permit application—Review.

The Board of Public Service shall review applications described in Section 22.42.070.B, and if such Board determines that any such application should be denied, it shall deny such application and shall advise the Clerk of the Board of Aldermen of such fact in writing. (1994 C., § 22.42.080; Ord. No. 59741, § 8, 1986.)

22.42.090 Permit application—Report to Clerk.

If the Board of Public Service determines that any application described in Section 22.42.070.B should be granted, it shall report such fact in writing to the Clerk of the Board of Aldermen, together with its findings from its review of such application, and the reason for its determination. (1994 C., § 22.42.090; Ord. No. 59741, § 9, 1986.)

22.42.100 Copy of report to Board members.

Upon receipt of a report from the Board of Public Service pursuant to Section 22.42.090, the Clerk of the Board of Aldermen shall furnish a copy of such report to all the current members of the Board of Aldermen. (1994 C., § 22.42.100; Ord. No. 59741, § 10, 1986.)

22.42.110 Permit—Issuance procedure.

No permit requested in an application described in Section 22.42.070.B shall be issued by the Board of Public Service for sixty (60) days after the date of the delivery of its report pursuant to Section 22.42.090 to the Clerk of the Board of Aldermen, unless the Clerk of the Board of Aldermen earlier delivers to the Secretary of the Board of Public Service a report approving such issuance as provided in Section 22.42.140. The expiration of such sixty (60) day period without delivery of a report under Section 22.42.140 to the Secretary of the Board of Public Service shall terminate the authority of the Board of Aldermen on such application under this chapter. (1994 C., § 22.42.110; Ord. No. 59741, § 11, 1986.)

22.42.120 Permit—Resolution to grant or deny application—Hearing.

After receipt of a report from the Board of Public Service pursuant to Section 22.42.090, any member of the Board of Aldermen may introduce a resolution recommending the grant or denial of the application, or the grant of such application subject to specified modifications of the application. Unless such a resolution shall have unanimous consent of the members of the Board of Aldermen present for its consideration at

the meeting at which it is first read, such a resolution shall be referred to the Committee on Parks and Environmental Matters, or to any successor committee thereto, or to any special committee on the park affected; the committee to which such resolution is referred may hold a public hearing on such resolution. A notice of the date, time and place of such hearing shall be given at least five (5) days before the date thereof in writing by certified mail to the applicant; and by delivery to the Secretary of the Board of Public Service and the Director of Parks, Recreation and Forestry. (1994 C., § 22.42.120; Ord. No. 59741, § 12, 1986.)

22.42.130 Permit—Resolution to grant or deny application—Second reading.

After such hearing, such Committee shall report such resolution, with Committee amendments, if any, to the Board of Aldermen for second reading and final action. (1994 C., § 22.42.130; Ord. No. 59741, § 13, 1986.)

22.42.140 Permit—Application modification.

The Clerk of the Board of Aldermen shall immediately report in writing the final action by the Board of Aldermen on such a resolution to the Secretary of the Board of Public Service, with a copy of any adopted resolution. Thereafter, such Board shall grant, or deny, the application in accordance with the action of the Board of Aldermen. If the Board of Aldermen by resolution recommends grant of such an application, subject to specified modifications of the application, the applicant shall be so advised, and if the application is so modified, the permit may, but need not, be granted by the Board of Public Service; otherwise it shall be denied. (1994 C., § 22.42.140; Ord. No. 59741, § 14, 1986.)

Chapter 22.44

DESIGNATION OF PARKS AND OTHER RECREATIONAL FACILITIES

For provisions on curfews in parks, see Ch. 22.18.

Sections:

22.44.010 David Hickey Park.
22.44.020 City Block 822 park.
22.44.030 Cyrus Crane Willmore Park.
22.44.040 City Block 4458 park and playground.
22.44.050 City Block 5776-N park and playground.
22.44.060 Edward Rice Memorial Park and Playground.
22.44.070 J. Milton Turner Playground.
22.44.080 Mount Pleasant Park.
22.44.090 Adelaide M. Windsor Park.
22.44.095 American Legion Memorial Park.
22.44.097 Senator J.B. "Jet" Banks Park.
22.44.100 Barrett Brothers Memorial Park.
22.44.110 Gregory J. Carter Park.
22.44.120 Charlotte Rumbold Park.
22.44.130 Robert Terry Park.
22.44.140 W.C. Handy Park.
22.44.150 Lindenwood Park.
22.44.160 David Hickey Park.
22.44.170 The McDonnell Planetarium.
22.44.180 Carondelet Lions Park.
22.44.190 Louis G. (Midge) Berra Park.
22.44.200 Richard H. Amberg Park.
22.44.210 Jordan W. Chambers Park.
22.44.220 Dwight D. Eisenhower Municipal Golf Course.
22.44.230 Fanetti Plaza.
22.44.240 Ray Leisure Park and Playground.
22.44.250 Father Edward S. Filipiak Park.
22.44.260 Eugene "Tink" Bradley Park.
22.44.270 Phillip J. Lucier Park.
22.44.280 John H. Poelker Park.
22.44.290 Donald E. Lasater Fountain.
22.44.300 Kiener Plaza Park—Morton D. May Memorial Amphitheater.
22.44.310 Ivory Perry Memorial Park.
22.44.320 Aloys P. Kaufmann Park.
22.44.330 Marie Fowler Park.
22.44.340 Father Maurice Nutt Park.
22.44.350 Leon Strauss Park.
22.44.360 Colonel George H. Blase Park.
22.44.370 Norman R. Seay Expansion Park.
22.44.375 Janet B. Wood Park.
22.44.376 William L. Clay, Sr. Sculpture Park.
22.44.377 Loretta Lee Hall Park.
22.44.380 Greg Freeman Park at Four Corners.

22.44.385 Dog park at Alabama Avenue.

22.44.010 David Hickey Park.

The public park lying between Stratford Avenue and Bircher Street and extending from Riverview Boulevard and Wren Avenue on the east to Goodfellow Boulevard on the west, is designated as "David Hickey Park" in honor of the first St. Louis member of the Expeditionary Forces killed in the World War. (1948 C., Ch. 48, § 67; 1994 C., § 22.44.010.)

22.44.020 City Block 822 park.

There is established as a public park all the property in City Block 822 bounded by Park Avenue, Fourteenth Street, Carroll Street and St. Ange Avenue. (1948 C., Ch. 48, § 68; 1994 C., § 22.44.020.)

22.44.030 Cyrus Crane Willmore Park.

There is established a public park in the City designated and named the "Cyrus Crane Willmore Park," containing approximately one hundred five acres, and all parcels of land within the hereinafter established boundaries are dedicated as a part of such public park for the uses and purposes, and upon the terms and conditions contained in two deeds by Cyrus Crane Willmore Organization, Inc., and by Cyrus Crane Willmore, John W. Higginbotham and E.P. Bradley, Trustees of St. Louis Hills Estates, both under date of December 21, 1946. The boundaries are herewith established and described as follows:

A tract of land in the City bounded by lines described as follows:

Beginning at a point in the western line of Hampton Avenue, distant 270 feet northwardly from the northern line of Gravois Avenue, measured along the said western line of Hampton Avenue, thence running in a northwardly direction along the western line of Hampton Avenue 2,000 feet, more or less, to the southwestern line of Jamieson Avenue, and thence northwestwardly and northwardly along the southwestern and western line of Jamieson Avenue 2,600 feet, more or less, to its intersection with the northern line of Loughborough Avenue, thence westwardly 900 feet along the southern line of Block 5 in "St. Louis Hills Estates by Cyrus Crane Willmore" to the western line of said Block 5, thence northwardly 377.75 feet along the western line of said Block 5 thence eastwardly 115 feet along the northern line of Lot 14 in said Block 5, to the western line of Willmore Road, thence northwardly 152.37 feet along the western line of Willmore Road to the southern line of Block 4 in "St. Louis Hills Estates by Cyrus Crane Willmore," thence westwardly 229.84 feet along the southern line of said Block 4, thence in a generally northwardly direction along the western lines of said Block 4 a total distance of 1,009.80 feet to the northern line of said Block 4, thence eastwardly 80 feet along the northern line of said Block 4 to the western line of Willmore Road, thence northwardly 228.15 feet along the western line of Willmore Road to the southern line of Block 1 in "St. Louis Hills Estates by Cyrus Crane Willmore," thence westwardly 70 feet along the southern line of said Block 1, thence in a generally northwardly direction along the western lines of said Block 1 a total distance of 1,416.65 feet to the southern line of Eichelberger Street, thence westwardly along the southern line of Eichelberger Street 40.08 feet to an angle point, thence northwardly 34.09 feet along the western line of McCausland Avenue, to the south line of "St. Louis Hills No. 2," thence westwardly 213.70 feet along the south line of "St. Louis Hills No. 2" to its intersection with the eastern right-of-way line of the River des Peres Drainage Works, thence running southwardly along said eastern right-of-way line of the River des Peres Drainage Works 8,400 feet, more or less, to the northern line of Gravois Avenue, thence eastwardly 10.02 feet along the northern line of Gravois Avenue, thence northwardly and parallel with the eastern right-of-way line of the River des Peres Drainage Works and distant 10 feet eastwardly therefrom, measured at right angles thereto, a distance of 282.67 feet, thence eastwardly 330.20 feet to the point of beginning excepting Loughborough Avenue.

The following parcels of land owned by the City and situated within the above-described boundaries, no matter whether acquired by purchase or condemnation or for whatever uses or purposes, are hereby dedicated as a public park for the uses and purposes and upon the terms and conditions contained in the two deeds referred to above:

City of St. Louis No. 1. A parcel of land in Out Lot 75 and Out Lot 76 of said City, being a part of Lots 15 and 21 of Kenneth Mackenzie's Tract, a subdivision, in United States Survey No. 1953:

Beginning at a point in the easterly right-of-way of the River des Peres Drainage Works on the dividing line between Out Lot 75 and Out Lot 76 distant 1,435.779 feet more or less, eastwardly along said dividing line from the City limits line as established in 1876; thence northwardly along said right-of-way line on a curve to

the right having a radius of 4,751.15 feet a distance of 522.555 feet, more or less, to a point of tangency; thence continuing northwardly along said tangent line (being the easterly line of said River des Peres Drainage Works) 37.585 feet, more or less, to the point of curve having a radius of 3,024.93 feet; thence along said curve to the left (being the easterly line of said River des Peres Drainage Works) to the center line of Old River des Peres channel as shown by Featherson in 1876, a distance of 110 feet, more or less; thence in a general southerly direction along said center line of River des Peres to a point in said easterly line of River des Peres Drainage Works right-of-way, being in the arc of a curve to the right having a radius of 4,751.15 feet; thence continuing in a northwardly direction along said right-of-way line 361.878 feet, more or less, to the point of beginning.

City of St. Louis No. 2. A parcel of land in Out Lot 75 of said City, being a part of Lot 22 of Kenneth Mackenzie's Tract, a subdivision in United States Survey No. 1953, beginning at a point in the easterly right-of-way of the River des Peres Drainage Works (and the center line of the Old River des Peres Channel as shown by Featherson in 1876) distant 657.878 feet, more or less, southerly along said right-of-way line from a point in the dividing line between Out Lot 75 and Out Lot 76, said point being distant 1,435.779 feet, more or less, eastwardly from the City limits line of the City of St. Louis as established in 1876; thence in a general southerly direction along the center line of said Old River des Peres channel to a point in said easterly right-of-way line of River des Peres Drainage Works, being a tangent between two curves; thence northwestwardly along said tangent line a distance of 424.523 feet, more or less, to a point of a curve having a radius of 4,751.15 feet; thence along said curve to the right a distance of 63 feet more or less, to the point of beginning.

City of St. Louis No. 3. A parcel of land in Out Lot 63 of said City, being a part of Lot 32 of the Kenneth Mackenzie's Tract, a subdivision in United States Survey 1953, beginning at a point in the southerly line of Loughborough Avenue (60 feet wide) and the easterly line of the right-of-way of the River des Peres Drainage Works; thence eastwardly along said southerly street line a distance of 289.386 feet, more or less, to the center line of Old River des Peres Channel as shown by Featherson in 1876; thence in a general southerly direction along said center line of Old River des Peres Channel to its intersection with the easterly line of said River des Peres Drainage Works right-of-way; thence northwestwardly along said right-of-way line a distance of 1,252.841 feet, more or less, to the point of beginning.

City of St. Louis No. 4. A strip of land in Out Lot 65 of the City of St. Louis being a part of Lot 17 of Fred W. Heidorn's Subdivision, bounded on the southwest by the northeast line of the proposed right-of-way of River des Peres Drainage Works and abutting thereon 335 feet more or less and established by Ordinance No. 32986 and Amendatory Ordinance No. 35975 and 39950, bounded on the northwest by the center line of River des Peres as established in the Featherson Survey of 1876, bounded on the northeast by a line parallel to and distant 10 feet perpendicular measurement northeast of the northeast line of said River des Peres Drainage Works, bounded on the southeast by Gravois Avenue, 80 feet wide and abutting thereon 10 feet. (1948 C., Ch. 48, § 69; 1994 C., § 22.44.030.)

22.44.040 City Block 4458 park and playground.

There shall be and is hereby established a public park and playground comprising Block 4458 of the City, being formed of part of Lot 126, all of Lots 127 to 137, inclusive, and part of Lot 138 of North Cote Brilliante, a subdivision, and being bounded north by the southern line of Lexington Avenue, 50 feet wide, and abutting thereon about 1,051 feet 3 inches, south by the northern line of Ashland Avenue, 40 feet wide, and abutting thereon about 1,072 feet 2 inches, east by the western line of Shreve Avenue, 60 feet wide, and abutting on the deviation thereof about 491 feet 2½ inches, and west by the eastern line of Euclid Avenue, 50 feet wide, and abutting thereon about 483 feet. (1948 C., Ch. 48, § 70; 1994 C., § 22.44.040.)

22.44.050 City Block 5776-N park and playground.

There shall be and hereby is established in the City as a public park and playground the land in City Block 5776-N, bounded north by Pernod Avenue, 50 feet wide, south by Lindenwood Place, 75 feet wide, west by Jamieson Avenue, as established 100 feet wide by Ordinance 41553, and east by Wenzlick Avenue, 60 feet wide, and also the land in City Block 5777-N, bounded west by Wenzlick Avenue, 60 feet wide, east by Prather Avenue, 60 feet wide, north by Pernod Avenue, 50 feet wide, and south by Lindenwood Place, 75 feet wide. (1948 C., Ch. 48, § 71; 1994 C., § 22.44.050.)

22.44.060 Edward Rice Memorial Park and Playground.

The public park and playground established by Ordinance 37564 is designated Edward Rice Memorial Park and Playground. (1948 C., Ch. 48, § 72; 1994 C., § 22.44.060.)

22.44.070 J. Milton Turner Playground.

The public playground established by Ordinances 41032 and 41033 is designated the J. Milton Turner Playground. (1948 C., Ch. 48, § 73; 1994 C., § 22.44.070.)

22.44.080 Mount Pleasant Park.

The public park now known as "Dakota Park," comprising all of City Block No. 2701, situated in the City and bounded on the north by North Dakota Street, on the south by South Dakota Street, on the east by East Michigan Avenue, and on the west by West Michigan Avenue, is changed to "Mount Pleasant Park." (1948 C., Ch. 48, § 74; 1994 C., § 22.44.080.)

22.44.090 Adelaide M. Windsor Park.

The following-described area of land, situated in the City, the purchase of which was authorized by Ordinance No. 44058, approved April 9, 1947, for park and playground purposes, is designated "Adelaide M. Windsor Park": All of City Block 2415, bounded north by Penrose Street, south by Angelica Street, east by Blair Avenue and west by City Block 2416; a portion of City Block 2416, consisting of all of Lots 14 to 20 inclusive, and Lots 31 to 37 inclusive in Block 2 of Lawless Subdivision, being bounded north by Penrose Street, south by Angelica Street, east by City Block 2415, and west partly by an alley and by Lots 21 and 30 of said block and subdivision. (1994 C., § 22.44.090; Ord. No. 44730, § 1, 1948.)

22.44.095 American Legion Memorial Park.

The City-owned property in City Block 499, bounded on 15th Street on the west, 14th Street on the east, Pine Street on the north and Chestnut Street on the south, is hereby renamed "American Legion Memorial Park." (1994 C., § 22.44.095; Ord. No. 65820, § 1, 2002.)

22.44.097 Senator J.B. "Jet" Banks Park.

The area owned by the City of St. Louis located in City Block 1854, which is now known as "Garrison/Brantner/Webster Park" and is also known as "Dunbar Park," is hereby renamed "Senator J.B. "Jet" Banks Park." (1994 C., § 22.44.097; Ord. No. 66257, § 1, 2003.)

22.44.100 Barrett Brothers Memorial Park.

The public park located at Goodfellow Boulevard and St. Louis Avenue is designated as Barrett Brothers Memorial Park. (1994 C., § 22.44.100; Ord. No. 45565, § 1, 1951.)

22.44.110 Gregory J. Carter Park.

That certain area in City Block 5392 (Block 10, Bircher's Subdivision—Lots 5 to 38), bounded on the north by Oriole Avenue, on the east by the property of John Deaver and John Pavlick, on the south by Gilmore Avenue and on the west by Lillian Avenue, is designed as Gregory J. Carter Park. (1994 C., § 22.44.110; Ord. No. 69806, § 2, 7-28-2014; Ord. No. 49624, § 1, 1959.)

22.44.120 Charlotte Rumbold Park.

That certain area in City Block 1872B bounded on the north by St. Ferdinand Avenue and the property of the St. Louis Public Service Company, on the east by Spring Avenue, on the south by North Market Street and on the west by Prairie Avenue is designated and shall be known as Charlotte Rumbold Park. (1994 C., § 22.44.120; Ord. No. 49696, § 1, 1959.)

22.44.130 Robert Terry Park.

That certain area in City Block 1286 bounded on the north by Eads Avenue, on the east by Compton Avenue, on the south by Henrietta Avenue and on the west by Louisiana Avenue is designated and shall be known as Robert Terry Park. (1994 C., § 22.44.130; Ord. No. 49697, § 1, 1959.)

22.44.140 W.C. Handy Park.

That certain area in City Block 4458 bounded on the north by Lexington Avenue, on the east by Shreve Avenue, on the south by Ashland Avenue and on the west by Euclid Avenue is designated and shall be known as W.C. Handy Park. (1994 C., § 22.44.140; Ord. No. 49827, § 1, 1960.)

22.44.150 Lindenwood Park.

That certain area in City Blocks 5776N and 5777N bounded on the north by Pernod Avenue, on the east by Prather Avenue, on the south by Lindenwood Place and on the west by Jamieson Avenue is designated and shall be known as Lindenwood Park. (1994 C., § 22.44.150; Ord. No. 49938, § 1, 1960.)

22.44.160 David Hickey Park.

That certain area in Out Lot 111 bounded on the north partly by the property of Milford W. Ball, partly by the property of Phines Harrel, partly by the prop-

erty of Albert C. Collins, partly by the property of Louis E. Barber, partly by the property of Ed Wiggins, bounded on the east by Hall Street, on the south by the Schaefer Estate, on the southwest by the property of Walter Brandt, and on the west by North Broadway is designated and shall be known as David Hickey Park. (1994 C., § 22.44.160; Ord. No. 50008, § 1, 1960.)

22.44.170 The McDonnell Planetarium.

The City Planetarium located in Forest Park is named "The McDonnell Planetarium," in recognition of the contribution of James S. McDonnell in the scientific fields of space exploration and related subjects and to the planetarium. (1994 C., § 22.44.170; Ord. No. 52541, § 1, 1964.)

22.44.180 Carondelet Lions Park.

All of City Block 3180, bounded on the north by Poepping Street, on the south by Davis Street, on the east by Minnesota Avenue, and on the west by Michigan Avenue, is designated and shall be known as Carondelet Lions Park. (1994 C., § 22.44.180; Ord. No. 52748, § 1, 1964.)

22.44.190 Louis G. (Midge) Berra Park.

The public park now known as "Joseph Vigo Park," comprising that certain area in City Block 4043 situated in the City and bounded on the north by Shaw Avenue, on the east by Macklin Avenue, on the south by Daggett Avenue and on the west by Lilly Avenue, is changed to "Louis G. (Midge) Berra Park." (1994 C., § 22.44.190; Ord. No. 53597, § 1, 1965.)

22.44.200 Richard H. Amberg Park.

That certain area in City Block 4177 bounded on the north by Dunnica Avenue, on the east by the eastern ten (10) feet of Lots 5 and 26, on the south by Keokuk Avenue, and on the west by Gustine Avenue, is designated and shall be known as Richard H. Amberg Park. (1994 C., § 22.44.200; Ord. No. 54814, § 1, 1967.)

22.44.210 Jordan W. Chambers Park.

The park area bounded on the north by School Street, on the east by Cardinal Avenue, on the south by Franklin Avenue and on the west by Compton Avenue is designated and shall be known as Jordan W. Chambers Park. (1994 C., § 22.44.210; Ord. No. 55259, § 1, 1969.)

22.44.220 Dwight D. Eisenhower Municipal Golf Course.

The eighteen-hole golf course located within Forest Park is designated and shall be known as Dwight D. Eisenhower Municipal Golf Course. (1994 C., § 22.44.220; Ord. No. 55403, § 1, 1969.)

22.44.230 Fanetti Plaza.

The new public park bounded on the north by Steins Street, on the east by the east line of Michigan Avenue as vacated per Ordinance 57881, on the south by Schirmer Street and on the west by Ivory Avenue is designated and shall be known as "Fanetti Plaza." (1994 C., § 22.44.230; Ord. No. 57969, § 1, 1980.)

22.44.240 Ray Leisure Park and Playground.

The public park and playground established by Ordinance 52413 approved March 10, 1964, extending southwardly from the southern line of Park Avenue to the northern line of Carroll Street, between Menard Street and Twelfth Street, is named "Ray Leisure Park and Playground." (1994 C., § 22.44.240; Ord. No. 57976, § 1, 1980.)

22.44.250 Father Edward S. Filipiak Park.

The property owned by the City in City Blocks 560 and 561, bounded by Ninth Street, Eleventh Street, O'Fallon Street, and Biddle Street, presently administered by the Division of Parks and informally identified by it as UDAG Park, is hereby designated as the "Father Edward S. Filipiak Park." (1994 C., § 22.44.250; Ord. No. 59458, § 1, 1985.)

22.44.260 Eugene "Tink" Bradley Park.

A. Ordinance 49826, approved March 15, 1960, authorized the creation of a public park on City Blocks 4408B and 4408C as therein more particularly described; thereafter said park was informally called the Union Marcus Quarry Park.

B. Said park as established by Ordinance 49826 and located in City Blocks 4408B and 4408C is hereby officially named and designated the "Eugene 'Tink' Bradley Park." (1994 C., § 22.44.260; Ord. No. 59667, §§ 1, 2, 1985.)

22.44.270 Phillip J. Lucier Park.

The public park located in parts of City Blocks 5513, 5514, 5515, and 5516 is hereby designated and shall be known as the "Phillip J. Lucier Park." (1994 C., § 22.44.270; Ord. No. 59789, § 1, 1986.)

22.44.280 John H. Poelker Park.

A. The unimproved eastern portion of the Memorial Plaza to be named the "John H. Poelker Park" as a result of the passage of this chapter is further described a portion of the Memorial Plaza as found in Ordinance 34823, and is described as:

Beginning in the center of the intersection of Tucker Blvd. and Market St. and then westwardly along the center of Market to its intersection with the center line of Thirteenth (13th) St., thence northwardly along the center of Thirteenth (13th) St. to its intersection with the center line of Chestnut St., thence eastwardly along the center line of Chestnut Street to its intersection with the center line of Tucker Blvd., then southwardly along the center line of Tucker Blvd. to the point of beginning.

B. The above-described and referenced block, a/k/a City Block 490 shall be known and is hereby designated and named the "John H. Poelker Park."

C. A proper and fitting commemorative marker as approved by the Director of Parks of the City shall be located on said park grounds. (1994 C., § 22.44.280; Ord. No. 59902, §§ 2—4, 1986.)

22.44.290 Donald E. Lasater Fountain.

A. The public fountain located in DeBaliviere Place on the northwest corner of Clara and Pershing Avenues is hereby designated and shall be known as the Donald E. Lasater Fountain.

B. An appropriate plaque may be erected near said fountain at no cost to the City upon approval of the Board of Public Service and the Heritage and Urban Design Commission. (1994 C., § 22.44.290; Ord. No. 60190, §§ 1, 2, 1986.)

22.44.300 Kiener Plaza Park—Morton D. May Memorial Amphitheater.

City Block 131, bounded by 6th Street on the east, Market Street on the south, 7th Street on the west, and Chestnut Street on the north, is hereby designated and established as a public park, to be used and maintained as such by the City, subject to the provisions of this chapter.

The designation of City Block 131 as a public park is subject to the applicable terms and provisions of a certain lease of a portion of such City Block, dated April 15, 1953, by and between Southern Real Estate & Financial Company, a Missouri corporation, lessor, and Wayco Petroleum Company, a Missouri corporation, lessee, the City of St. Louis, assignee-successor-lessee.

The park established and dedicated by the ordinance codified in this section shall be known as Kiener Plaza Park and shall be administered, managed and maintained by the Division of Parks of the Department of Parks, Recreation and Forestry, pursuant to Article XIII, Section 14-B of the City Charter.

The Director of Parks, Recreation and Forestry and the Board of Public Service are hereby authorized and directed to permit a portion of the land within the City Block 131 to be used for a public amphitheater, to be known as the Morton D. May Memorial Amphitheater. (1994 C., § 22.44.300; Ord. No. 60356, §§ 1—4, 1987.)

22.44.310 Ivory Perry Memorial Park.

A. The following-described realty is hereby designated a public park of the City, namely:

Part of Lots 4 and 5 of the Subdivision in Partition of Ann Biddle's Estate and Lots 23 to 31, inclusive, in Block 3 south of the Amended Plat of Cabanne's Subdivision, and in Block 3865 of the City of St. Louis, more particularly described as follows:

Beginning at the point of intersection of the south line of Cabanne Avenue, 60 feet wide, and the east line of Belt Avenue, 60 feet wide, thence southwardly along the east line of Belt Avenue 801 feet 6 inches to a point in the north line of Clemens Avenue, a private Street, 60 feet wide, thence eastwardly 575 feet 5 ½ inches along the north line of said Clemens Avenue to a point in the west line of Arlington Avenue and the northward prolongation thereof, 586 feet 6 inches to a point in the south line of Block 1 of Cabanne's Subdivision, thence westwardly along said south subdivision line and along the south line of Lot 22 in Block 3 south of the Amended Plat of Cabanne's Subdivision, 89 feet 10 inches to a point, thence northwardly 216 feet 7 inches along the west line of said Lot 22 to a point in the south line of Cabanne Avenue, thence westwardly along the south line of Cabanne Avenue 486 feet to the point of beginning.

B. The name of said park is hereby established and designated as "Ivory Perry Memorial Park."

C. Any previous name given to said park or to the area herein described as the "Ivory Perry Memorial

Park," is by this section rescinded, recalled and nullified. (1994 C., § 22.44.310; Ord. No. 61559, §§ 1—3, 1989.)

22.44.320 Aloys P. Kaufmann Park.

The provisions of any ordinance to the contrary notwithstanding, that portion of Memorial Plaza comprising City Block 501, bounded on the north by the south line of Pine Street, on the east by the west line of Tucker Boulevard, on the south by the north line of Chestnut Street and on the west by the east line of Thirteenth Street is designated as a City park, to be known as Aloys P. Kaufmann Park. (1994 C., § 22.44.320; Ord. No. 61692, § 1, 1989.)

22.44.330 Marie Fowler Park.

Beginning at the intersection of the north line of Page Boulevard with the east line of Union Boulevard, thence east along the north line of Page Boulevard one hundred (100) feet, thence north and parallel with Union Boulevard one hundred and one (101) feet, more or less, to a point twenty (20) feet south of the north line of Lot F; thence west and parallel with said north line of Lot F eighty-eight (88) feet, more or less, to the east line of Union Boulevard, thence south along the east line of Union Boulevard, one hundred forty-six (146) feet, nine and three-fourths (9¾) inches, to the point of beginning; and bounded on the north by the northern twenty (20) feet of Lot F. (1994 C., § 22.44.330; Ord. No. 64572, § 1, 1998.)

22.44.340 Father Maurice Nutt Park.

That certain area comprising all of City Block 5036, and established as a City park in Ordinance 18573, approved on July 13, 1896, is designated and shall be known as "Father Maurice Nutt Park." (1994 C., § 22.44.340; Ord. No. 64664, § 1, 1999.)

22.44.350 Leon Strauss Park.

That certain area in City Block 1060 which is the subject property of a ground lease between the City of St. Louis and the Grand Center Association, such property being more fully described in Ordinance 59339, approved on December 19, 1984, is designated and shall be known as "Leon Strauss Park." (1994 C., § 22.44.350; Ord. No. 64665, § 1, 1999.)

22.44.360 Colonel George H. Blase Park.

There is an existing City park located at 10000 Riverview Drive, currently referred to as the North River Park, that is hereby designated, named and hereafter be known as the "Colonel George H. Blase Park." (1994 C., § 22.44.360; Ord. No. 63074, § 1, 1994.)

22.44.370 Norman R. Seay Expansion Park.

A. That public park formally known as Gamble Park is named the "Norman R. Seay Expansion Park" as a result of the passage of the ordinance codified in this section and is described as follows:

Land in City Block 1007, bounded on the south by the north line of Gamble Avenue, 60 feet wide, and abutting thereon 505 feet and 3 inches, bounded on the east by the west line of Glasgow Avenue, 60 feet wide, and abutting thereon 118 feet and 3 inches, bounded on the north by the south line of an east-west alley, 15 feet wide, in said City Block and abutting thereon 167 feet and 4 inches, thence northwardly along the west property line of Lot 42 in said City Block and abutting thereon 118 feet and 3 inches, bounded on the north by the south line of Dayton Avenue, 60 feet wide, and abutting thereon 337 feet and 6 inches, bounded on the west by the east property line of Lot 21 and Lot 28 in said City Block and abutting thereon 251 feet and 6 inches.

B. A proper and fitting commemorative marker as approved by the Director of Parks of the City of St. Louis shall be located on said grounds. (1994 C., § 22.44.370; Ord. No. 63707, §§ 1, 2, 1996.)

22.44.375 Janet B. Wood Park.

The area owned by the City of St. Louis and bounded by 20th Street on the west, Bryant Street on the east and Biddle Street on the north and south is hereby named the Janet B. Wood Park. (1994 C., § 22.44.375; Ord. No. 65542, § 1, 2002.)

22.44.376 William L. Clay, Sr. Sculpture Park.

The area in the City Block 4547 bounded by Clara Avenue on the east, Clemens Avenue on the north and an alley on the south is hereby named the William L. Clay, Sr. Sculpture Park. (1994 C., § 22.44.376; Ord. No. 65548, § 1, 2002.)

22.44.377 Loretta Lee Hall Park.

That area comprising all of City Block 1176, now known as Carr Square Park, and established as a City Park in Ordinance 42002, is hereby renamed and shall be known as "Loretta Lee Hall Park." (1994 C., § 22.44.377; Ord. No. 65549, § 1, 2002.)

22.44.380 Greg Freeman Park at Four Corners.

The area owned by the City of St. Louis located in City Block 5425, comprising 0.127 acres, which is now known as "Four Corners Park," is hereby renamed "Greg Freeman Park at Four Corners." (1994 C., § 22.44.380; Ord. No. 65988, § 1, 2003.)

22.44.385 Dog park at Alabama Avenue.

There is hereby established a dog park in City Block 2777 comprising all of the real property known and numbered as 4742—4754 Alabama Avenue. Such dog park shall be subject to all rules and regulations promulgated by the Director of Parks, Recreation and Forestry under the authority granted in Ordinance 66595, and its successor ordinances. (1994 C., § 22.44.385; Ord. No. 68823, § 1, 1-18-2011.)

Chapter 22.48

DIVISION OF FORESTRY

Editor's Note:

Ord. No. 68607, §§ 2—27, adopted March 16, 2010, repealed ch. 22.48 and enacted a new chapter as set out herein. The former ch. 22.48, §§ 22.48.010—22.48.250, pertained to similar subject matter and derived from §§ 240.010, 240.020, 240.040, 240.050, 241.010—241.040, 241.060—241.080, 242.010—242.110, and 243.010—243.030 of the 1960 Code; Ord. No. 49772, § 2(28)—(42), (45)—(47), 1960; Ord. No. 56447, 1973; and Ord. No. 64804, §§ 1—8, 1999.

Sections:

22.48.010 Purpose and intent.
22.48.020 Rules of construction, definitions.
22.48.030 Applicability; park trees.
22.48.040 Commissioner of Forestry.
22.48.050 Administrative responsibilities.
22.48.060 Employees.
22.48.070 Authority.
22.48.080 Tree placement and planting.
22.48.090 Tree planting.
22.48.100 Permit required to plant.
22.48.110 Permit to maintain required.
22.48.120 Permit conditions, denial and revocation.
22.48.130 Permit fees.
22.48.140 Tree clearance requirements.
22.48.150 Tree preservation and replacement.
22.48.160 Sewer damage.
22.48.170 Sidewalk damage.
22.48.180 Mutilation or theft of trees, shrubs or plants on City property.
22.48.190 Tree lawn and parkway planting requirements and criteria.
22.48.200 Private tree hazards.
22.48.210 Private tree disclaimer.
22.48.220 Enforcement.
22.48.230 Interference.
22.48.240 Penalty; replacement and repair costs.
22.48.250 Injunctive relief.
22.48.260 Regulations.

22.48.010 Purpose and intent.

The Board of Aldermen of the City of St. Louis finds and declares as follows:

A. The planning, development, maintenance and cultivation of a diverse, plentiful and healthy urban forest within the City of St. Louis (the "City") in perpetuity is desirable and in the interest of the health, welfare, comfort and general well-being of the City's citizens, because of the positive environmental, social and economic benefits trees provide, such as oxygen production, dust filtration, storm water runoff reduction, pollution absorption, erosion control, phytoremediation, creation and enhancement of recreational spaces, energy cost reduction and the provision of shade.

B. The presence of mature and healthy trees is important in the stabilization and growth of neighborhoods, as attractive tree-lined streets contribute to increased property values and general neighborhood improvements.

C. The presence of trees within the City promotes tourism and commerce because of the positive effect trees have on the appearance and attractiveness of the physical environment of the City.

D. The proper management, care and protection of the City's urban forest requires policies and specifications for the planting, maintenance, preservation and management of trees, shrubs and plants on City property, and in some circumstances on private property, to preserve public safety and prevent or control infectious diseases and insect pests harmful to the tree, shrub and plant population in the City.

E. With proper management, planning and resources the benefits of a diverse, plentiful and healthy urban forest can be fully realized and maintained for the City in perpetuity.

F. The Board of Aldermen finds and declares that:

1. This chapter is a "police power" regulation necessary to protect the public health, safety, welfare and peace;

2. The effective administration of this chapter will entail the exercise from time to time of administrative discretion;

3. It is not possible to provide in legislation comprehensive rules for the appropriate exercise of administrative discretion in all circumstances relating to the proper regulation and management of trees, shrubs and plants;

4. Accordingly, it is appropriate to vest discretion in the Commissioner, as hereinafter defined, and the Division, as hereinafter defined, in circumstances where matters affecting proper selection, location, condition, planting and removal of trees, shrubs and plants are not expressly addressed by this chapter, and it is the intent of the Board of Aldermen, to the fullest extent permitted by law, to vest such discretion in the Commissioner and the Division, to be exercised in furtherance of the underlying purpose of this chapter. (1994 C., § 22.48.010; Ord. No. 68607, § 1, 3-16-2010.)

22.48.020 Rules of construction, definitions.

A. In this chapter:

1. The singular number includes the plural number and the plural includes the singular.

2. Shall is mandatory and may is permissive.

3. The masculine gender includes feminine and neuter.

B. In this chapter when the following words or phrases are used, they shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise:

Caliper: The diameter of a tree measured at a point 6 inches above ground line if the resulting measurement is no more than 4 inches. If the resulting measurement is more than 4 inches then the measurement is made at a point 12 inches above the ground line.

City property: All real property which is owned, leased or maintained by the City, any part of any right-of-way within the City, other than parks.

City tree: Any tree found or located on City property.

Commissioner: The Commissioner of Forestry of the City of St. Louis or such Commissioner's designated employee.

Contractor: A person acting under a contract or written agreement with the City, the Department of Parks, Recreation and Forestry or the Forestry Division for the performance of an activity or function called for by this chapter.

Critical root zone: All or part of a tree's root system that must remain undisturbed to offer the tree the best chance for survival. Critical rooting distance shall be determined by multiplying the tree's diameter in inches at 4.5 feet above soil line by 2.5. For trees growing in areas that are less than their critical rooting distance the critical root zone is all of the growing area.

Diameter breast height: The diameter of a tree measured at 4.5 feet above average grade.

Director: The Director of the City's Department of Parks, Recreation and Forestry.

Division: The Division of Forestry of the City's Department of Parks, Recreation and Forestry.

Hazard tree: A tree possessing qualities in structure and/or growth that create an unacceptable level of risk to public safety.

Person: An individual person, corporation, association or entity of any kind.

Plant: Any form or type of vegetation that is not a tree or shrub.

Right-of-way: Property located within and adjoining streets, roads and alleys within the City, which is owned, controlled or maintained by the City, including, but not limited to, areas commonly referred to as "tree lawn" between sidewalks and curbs.

Shrub: Any self-supporting multi-stemmed woody plant that attains at maturity a height of 12 feet or less.

Tree: Any self-supporting woody plant having a well-defined stem, a more or less well-defined crown and a mature height of greater than 12 feet and/or a trunk diameter measuring no less than 1.5 inches measured at diameter breast height, or a cluster of main stems having an aggregate diameter of not less than 2 inches in diameter measured at diameter breast height.

Weed: Any unwanted plant, shrub or tree, which because of its location and/or growth characteristics or habits is commonly considered an undesirable element in the landscape. (1994 C., § 22.48.020; Ord. No. 68607, § 3, 3-16-2010.)

22.48.030 Applicability; park trees.

A. All provisions of this chapter shall apply to all City property, except as otherwise provided in this chapter.

B. Except as otherwise provided in this chapter, trees, shrubs and plants now or hereafter located on City parks or on other land maintained by the Parks Division of the Department of Parks, Recreation and Forestry shall be controlled and managed by the Parks Commissioner, who shall enforce all applicable provisions of this chapter as they pertain to such trees, shrubs and plants; provided, however, that the Director may grant the Commissioner of Forestry the authority to assume specific tree, shrub and plant management and maintenance duties in City parks. (1994 C., § 22.48.030; Ord. No. 68607, § 4, 3-16-2010.)

22.48.040 Commissioner of Forestry.

The Division shall be in the charge of a Commissioner appointed by the Director The Commissioner shall be responsible for planting, trimming and maintaining all City trees along all public right-of-way. The Commissioner shall also be responsible, as herein provided, for the planting, maintenance and management of all trees, shrubs and plants located upon City property, and for developing standard practices and procedures and planting, maintenance and management specifications for the Division to ensure the effective management of trees, shrubs and plants within the City's jurisdiction. (1994 C., § 22.48.040; Ord. No. 68607, § 5, 3-16-2010.)

22.48.050 Administrative responsibilities.

The Commissioner shall:

A. Keep a record of all transactions of the Division, and whenever the Director may require, make a full detailed report concerning the same in addition to the annual report required by Section 10 of Article VIII of the City Charter.

B. Be the custodian of records and papers of the Division and prepare and maintain all necessary literature, notifications, and records necessary for the administration of this chapter.

C. Prepare and implement a Master Street Tree Planting and Maintenance Plan, consistent with this chapter, which shall include an inventory of existing City trees, tree planting standards, standards for the acceptance of nursery stock and tree planting recommendations that promote species diversity and a sustainable and healthy urban forest, and procedures and standards required to effectively and safely facilitate all tree maintenance activities of the Division. Such plan shall be kept on file at the Division's office and in the City Register's Office.

D. Prepare and implement an emergency tree management plan, consistent with this chapter, that shall include procedures and steps for maintaining and restoring the City's urban forest during and following an emergency such as a tornado, thunderstorm, windstorm, ice storm, flood or other act of God. Such plan shall be kept on file at the Division's office and in the City Register's Office.

E. Develop and maintain a list of equipment and labor costs associated with services provided by the Division for the purposes of assessing penalties as provided for in Section 22.48.240. (1994 C., § 22.48.050; Ord. No. 68607, § 6, 3-16-2010.)

22.48.060 Employees.

A. The Commissioner is authorized to appoint and control the number of assistants and subordinate employees necessary to perform the duties of the Division, subject to the civil service provisions of the City Charter and applicable ordinances.

B. The Commissioner may designate a deputy to act in the Commissioner's place in the event of the Commissioner's temporary absence from the City. (1994 C., § 22.48.060; Ord. No. 68607, § 7, 3-16-2010.)

22.48.070 Authority.

The Commissioner shall have the power and authority to:

A. Prepare and implement procedures, standards and specifications pertaining to the planting, pruning, removal, disease and insect treatment, protection and other necessary maintenance and management activities of all trees, shrubs or plants planted on City property.

B. Recommend to the Director possible future ordinance provisions pertaining to trees, shrubs and plants located on private property which would, if enacted, tend to prevent the spread of infectious disease and insect pests harmful to the general health and well-being of the entire tree, shrub and plant population within the City and to control and/or abate nuisance and hazard trees.

C. Enter upon private property at reasonable hours for the purposes of inspecting trees thereon, if there is reasonable cause to believe by virtue of its appearance, or otherwise, that a tree has structural or growth conditions that make it a hazard, or is or may be infected with a infectious disease or vectors that may transmit an infectious disease or an insect pest harmful to the general well-being of the entire tree population in the

City. The Commissioner shall have the power and authority to mark or otherwise identify any such tree and remove any samples or portions thereof for purposes of further diagnosis of any suspected disease or insect problems.

D. Cause trees on private property to be free of hazards, diseases and insect pests.

E. Cause trees on private property to be maintained so as to prevent the obstruction of: vehicular or pedestrian traffic, street corners and intersections, alleys, traffic control signs and devices and the safe passage of light as described in Section 22.48.140. (1994 C., § 22.48.070; Ord. No. 68607, § 8, 3-16-2010.)

22.48.080 Tree placement and planting.

A. The Commissioner shall determine, by regulations issued pursuant to Section 22.48.260, and maintain standards for the appropriate tree species, sizes, spacing and placement on City property, including a list of undesirable and desirable street trees, and standards for the minimum size for tree boxes/wells, and the appropriate spacing distances for existing trees located on City property.

B. The Commissioner shall determine and maintain standards for the acceptance of nursery stock for trees to be planted or placed upon any right-of-way.

C. The Commissioner shall inspect and approve all street trees prior to their planting on any right-of-way.

D. The Commissioner shall review and approve all plans for the planting of trees on City or private property by any City department or agency, and for the planting of trees on private property as part of any development project of any kind approved by any City department or agency, including agencies operated by St. Louis Development Corporation.

E. Any trees hereafter set out, planted or raised on City property, which are not consistent with the standards provided for in this section, are hereby declared a public nuisance and subject to treatment and abatement as such. (1994 C., § 22.48.080; Ord. No. 68607, § 9, 3-16-2010.)

22.48.090 Tree planting.

A. When in the judgment of the Commissioner it is necessary or desirable that trees be planted on City property the Commissioner shall develop and implement such plans as necessary to cause said trees to be planted. The Commissioner is further authorized to develop programs, policies and procedures to foster and encourage the planting of trees by City residents, other public agencies and businesses.

B. The Commissioner shall provide on an annual basis to each Alderman an accounting of street trees removed and planted so as to indicate their net gain or loss within their ward.

C. The Commissioner shall provide on an annual basis to the Director an accounting of street trees removed and planted indicating the net gain or loss of City trees within each ward of the City and the net gain or loss of City trees within the City as a whole.

D. Whenever the Division shall remove any City tree, the Division shall plant a new City tree not less than 2.5 inches in caliper size to replace the removed City tree. When site conditions permit, the replacement City tree shall be planted within 500 feet of the site of the removed tree. If a suitable planting location cannot be found within 500 feet of the removal location, the replacement City tree shall be planted at another location determined by the Commissioner within the ward where the removal occurred. The cost of such replacement City trees shall be charged by the Commissioner to the tree planting or similar account of the Alderman of the ward where the removal occurred, unless otherwise provided by this chapter. (1994 C., § 22.48.090; Ord. No. 68607, § 10, 3-16-2010.)

22.48.100 Permit required to plant.

A. No person shall plant, transplant, relocate or replace any tree on City property without first obtaining a permit ("permit to plant") from the Commissioner. This section shall not apply to planting or reforestation activities of the Division or contractors.

B. The Commissioner shall develop policies and procedures for the Division to cause the efficient and equitable issuance of tree planting permits under the provisions of this section.

C. Work done under any permit to plant must be done in compliance with any other applicable sections of this chapter.

D. Any permit to plant shall specify the species and size of each tree to be planted.

E. Permits to plant trees larger than 4 inches in caliper size shall expressly provide, as a condition of the issuance of the permit to plant, that the permittee will pay replacement and associated replacement costs for a period of 5 years after planting.

F. Any and all trees hereafter set out, planted or raised upon City property in violation of this section are hereby declared a public nuisance and subject to treatment and abatement as such. (1994 C., § 22.48.100; Ord. No. 68607, § 11, 3-16-2010.)

22.48.110 Permit to maintain required.

A. No person shall directly or indirectly perform maintenance, including, but not limited to, pruning, spraying or removal, on any City tree without first obtaining a permit ("permit to maintain") from the Commissioner. This section shall not apply to tree maintenance activities performed by the Division or by contractors, or by or on behalf of any City department or agency.

B. The Commissioner shall develop policies and procedures for the Division to cause the efficient and equitable issuance of permits to maintain under this section.

C. A permit to maintain shall only be valid for a period of time specified by the Division.

D. The Commissioner may issue permits to maintain without formal application in order to avoid danger or hazard to persons or property in emergency situations requiring immediate maintenance of a City tree; provided, that a formal application shall be filed within seventy-two hours of starting such emergency action. If in such an emergency the Commissioner or a representative of the Division cannot be reached, it shall be lawful to perform the necessary emergency maintenance required; provided, the person performing such emergency maintenance shall report such action to the Commissioner within seventy-two hours of starting such maintenance.

E. Any application for a permit to maintain shall identify the person performing the work, and only that person may perform the work authorized by the permit. If after a permit to maintain is issued the identity of such person changes, the permit holder shall contact the Division for approval to amend the permit within forty-eight hours prior to the start of the work, or immediately if the change occurs after work has begun.

F. The Commissioner may issue a general permit to maintain trees to public and private utility companies for a period not to exceed two years; provided the company's pruning or maintenance specifications comply with all other provisions of this chapter and other applicable rules and regulations; and provided that the removal of any City tree shall be specifically approved in advance in writing by the Commissioner. Pruning of branches of City trees under such a permit shall be done in accordance with the most recent edition of American National Standard Institute for Tree Care Operations - Tree, Shrub, and Other Woody Plant Maintenance Standard Practices (Pruning) (ANSI A300 Part 1). (1994 C., § 22.48.110; Ord. No. 68607, § 12, 3-16-2010.)

22.48.120 Permit conditions, denial and revocation.

A. The Commissioner shall:

1. Establish, by regulation pursuant to Section 22.48.260, reasonable conditions on which permits to plant or maintain are to be issued, performed and completed.

2. Deny the issuance of any permit under any section of this chapter if, in his judgment, issuing said permit is not in the best interest of the City in the maintenance, preservation, sustainability and/or health of its urban forest. The Commissioner's decision to deny an issuance of a permit may be appealed in writing within 10 days of such denial to the Director, whose decision shall be final.

B. The Commissioner may suspend or revoke any permit should the permittee at any time fail to comply with the conditions of the permit. Upon suspension all work must cease until the conditions of the permit are met.

C. A permittee who fails to comply with the conditions of a permit shall be deemed in violation of this section and subject to the penalties prescribed in Section 22.48.240.A, and to any repair and replacement costs defined in Section 22.48.240.B required to repair, replace or restore any element or feature of landscape, hardscape or infrastructure.

D. Any person performing work under a permit shall have in their possession and produce upon request by the Commissioner all licenses to operate within the City required by law or other applicable ordinances.

E. Any permittee assumes all liability and risk relating to or arising out of any work performed or undertaken under a permit, and all permits shall expressly so provide, and shall further provide that the permittee agrees to indemnify the City for claim, liability or damage which the City may incur as a result of the issuance of the permit or any action or omission under the permit.

F. Any person found by the Commissioner to have knowingly falsified or concealed information on a permit application shall have their permit application denied, or, if a permit has been issued, it shall be revoked. Any such falsification or concealment is a violation of this chapter. (1994 C., § 22.48.120; Ord. No. 68607, § 13, 3-16-2010.)

22.48.130 Permit fees.

A. There shall be no fee for a permit to plant, or for a permit to maintain, which does not involve removal of a City tree.

B. The Commissioner shall assess, for the privilege of removing a City tree, a reforestation fee for each City tree approved for removal on a permit to maintain application, as provided in this section. The Commissioner may waive such fee for good cause.

C. The reforestation fee for removal of trees shall be determined as follows:

1. For trees less than 8 inches in size at diameter breast height, the fee shall be the retail cost to the Forestry Division to purchase a tree of 2.5 to 3 inches in caliper size of similar canopy type of the tree removed.

2. For trees that exceed 8 inches in size at diameter breast height, the fee shall be the retail cost to the Forestry Division to purchase a tree of 2.5 to 3 inches in caliper size of similar canopy type of the tree removed plus the cost to purchase an additional tree 2.5 to 3 inches in caliper size for every additional 6 inches of size at diameter breast height. For example, the reforestation fee for removal of a tree 20 inches in diameter breast height would be the cost of 3 trees as provided in this subparagraph.

3. Multi-stemmed trees shall have the aggregate diameter of each of their trunks used in determining their size.

D. The Commissioner shall maintain a current schedule of such retail costs and current values in the Division office and available to the public.

E. Permit to maintain applications that will involve the removal of trees shall be accompanied by the applicable reforestation fee, in full. The reforestation fee must be paid in full to the Commissioner before a permit to maintain will be issued pursuant to Section 22.48.110. The Commissioner shall have the authority to waive the reforestation fees in his discretion; for example, for the removal of trees in poor condition or of species that are considered undesirable or poorly located. (1994 C., § 22.48.130; Ord. No. 68607, § 14, 3-16-2010.)

22.48.140 Tree clearance requirements.

A. The Commissioner shall determine and maintain standards for appropriate height and spatial clearances for all City trees so as to allow the safe use or occupancy of the space around said tree. Such standards shall include, but not be limited to, height and spatial clearances for streets, sidewalks, alleys, building and other structures, traffic control signs and devices, street and alley lights, public utility wires and intersections and intersection approaches.

B. The Commissioner shall determine and maintain standards for the growth and maintenance of trees, shrubs and plants located on any lot or parcel or land within the City so as to prevent the obstruction of vehicular or pedestrian traffic, street corners, intersections and intersection approaches, traffic control signs and devices and the safe passage of light.

C. The Commissioner shall perform maintenance of trees, shrubs and plants on City property for clearance in a manner consistent with the most widely accepted arboricultural practices.

D. In the event a standard provided under this section is changed, for purposes of contracts, the applicable standard in effect at the time a contract was made shall be used during the term of the contract. (1994 C., § 22.48.140; Ord. No. 68607, § 15, 3-16-2010.)

22.48.150 Tree preservation and replacement.

A. It is the policy of the City:

1. To suffer no net loss in the population and canopy of the urban forest under its jurisdiction, as such losses would be detrimental to the health, welfare, comfort and general well-being of City residents by reducing the benefits provided by the City's urban forest;

2. To preserve City trees whenever possible during development and land improvement by using the most appropriate and feasible arboriculturally sound methods to preserve City trees from injury and damage; and, where City trees cannot be preserved during development or land improvement, to plant appropriate replacement City trees as prescribed by this chapter; and

3. To increase and expand the population and canopy of the urban forest under its jurisdiction by planting new City trees whenever possible to increase the total benefit provided by the City's urban forest.

B. Any person issued a building permit shall be responsible for complying with this section; provided, that fees required for a permit to maintain for the removal of any City tree shall be the responsibility of the person making application for said permit. In the event a building permit is not issued for work which may affect City trees then the property owner shall be responsible for complying with all provisions of this section.

C. Any person employed, contracted or otherwise working on behalf of the City shall be subject to all applicable provisions of this section.

D. A permit to maintain for removal of a City tree as a result of the demolition, renovation, improvement or erection of any building or outbuilding or any type of improvement on any parcel of land in the City must be issued pursuant to Section 22.48.110 of this chapter before such tree can be removed by any person, including persons employed, contracting with or otherwise working of behalf of the City and all conditions and fees as prescribed in Sections 22.48.120 and 22.48.130 shall apply. Any person who removes or causes to have removed a City tree without the prescribed permit to maintain shall be deemed in violation of this section and subject to a five hundred dollar fine for acting without a required permit, and to an additional fine for destruction of City property equal to the applicable reforestation fee under Section 22.48.130.A, B or C and any replacement and repair costs as determined by Section 22.48.240, up to a maximum of five hundred dollars for each tree regardless of their actual health and desirability at the time of their removal.

E. All reasonable steps shall be taken to prevent destruction of or damage to City trees (other than City trees approved for removal), during the improvement, demolition, renovation, improvement or erection of any building or outbuilding or any type of improvement on any parcel of land in the City. Such steps include, but are not limited to, the following tree preservation activities:

1. The placing of protective fencing at the boundary or limits of the established critical root zone of each City tree that has been determined by the Commissioner to have the potential of being injured during construction or, in the absence of such determination by Commissioner, within the area of construction. Such protective fencing shall be installed before construction of any type is to begin, with a minimum height of at least 4 feet and installed in such a manner that it maintains its rigidity and effectiveness as a barrier.

2. Construction equipment, trailers, traffic and storage must remain outside of the critical root zone of any City tree.

3. No materials, equipment, spoil, or waste or washout water may be deposited, stored or parked within the critical root zone of any City tree.

4. Erosion control devices such as silt fencing, debris basins and water diversion structures shall be installed in such a manner to prevent siltation and/or erosion within critical root zone of any City tree.

5. Spoil from trenches, basements, or other excavations shall not be placed within the critical root zone of any City tree, either temporarily or permanently.

6. No burn piles or debris pits shall be placed within the critical root zone of any City tree.

7. No ashes, garbage or debris may be dumped or buried within the critical root zone of any tree.

8. Any herbicides placed under paving materials must be safe for use around trees and labeled for that use and not be readily transported by water.

9. Any brush clearing required within the critical root zone of any City tree shall be accomplished using hand-operated equipment and approved by the Commissioner.

10. City trees shall be root pruned before grading, pad preparation or excavation for foundations or walls or utility trenching occurs. Root pruning requires a permit to maintain applied for and issued in accordance with Section 22.48.110 and any other applicable section of this chapter. Roots shall be root pruned to 1 foot outside of their critical root zone and cut cleanly using either manual or mechanical methods such as chainsaws, vibrating knife, rock saw, narrow trencher or other root pruning equipment approved by the Commissioner. The use of any type of equipment that otherwise tears, rips or pulls roots is not permissible.

11. All underground utilities and drain or irrigation lines shall be routed around the critical root zone of City trees. If underground utilities must pass through a critical root zone, they shall be tunneled or bored under the tree for the duration of the critical root zone, unless deemed unreasonable do so by the Commissioner.

12. City trees shall not be pruned or otherwise maintained in any manner without a permit to maintain first being applied for and issued pursuant to this chapter.

F. The Commissioner by regulation issued pursuant to Section 22.48.260 may provide other practices and specifications necessary to effectively preserve City trees at construction sites.

G. Prior to the start of construction any person may request the Commissioner to waive any provision of subsection E of this section which they feel are unreasonable or impose undue financial hardship in the completion of construction. No waiver request made after the start of construction may be granted. The Commissioner's decision on any such waiver request shall be final.

H. The Commissioner is authorized to issue an emergency stop work order for up to seventy-two hours if in the Commissioner's opinion the precautions required by Subsection E of this section were not undertaken before construction commenced or are not maintained at any time during construction. The Commissioner may rescind such order within twenty-four hours if the violations for which the order was issued are remedied. If the violations are not corrected within twenty-four hours after issuance of the stop work order and the project is supervised by the Board of Public Service, the Commissioner may request the Board of Public Service to issue a permanent stop work order. Penalties, if any, levied by the Board of Public Service shall be in addition to all fines and penalties imposed and prescribed by this chapter. The Board of Public Service may issue a stop work order at any time of its own volition to any person that fails to comply with any requirement of Subsection E of this section, until such provisions are met, or may issue a permanent stop work order.

I. Failure to obtain any permit required by this section, or to take any precaution as prescribed in this section, before construction commences or at any time during construction, is a violation of this chapter and punishable by a fine of two hundred fifty dollars for each precaution not undertaken or maintained, in addition to any other applicable fine under this chapter.

J. Failure to stop work upon issuance of an emergency stop order by the Commissioner or a stop work order by the Board of Public Service is a violation of this chapter and punishable by a fine of five hundred dollars, in addition to any other fines or penalties prescribed by this chapter. Each full hour that work continues after the issuance of a stop work order is a separate violation.

K. Any person who damages any City tree, shrub or plant during construction, demolition, renovation, improvement or erection of any building or outbuilding or any type of improvement on any parcel of land is in violation of this chapter and subject to a fine of two hundred fifty dollars for each City tree, shrub or plant damaged, in addition to any other penalties or fines applicable under this chapter.

L. Any City department that plans to excavate, cut or otherwise remove or damage roots within the critical root zone of any City tree shall, where possible, report the scheduled occurrence of such activities forty-eight hours in advance to the Commissioner, who shall review such activities and if available offer less damaging alternatives. In the event advance notification cannot be provided, then the Commissioner shall be notified within forty-eight hours of the occurrence of the root damage or removal so an assessment can be performed to determine the health, stability and safety of the affected tree. (1994 C., § 22.48.150; Ord. No. 68607, § 16, 3-16-2010.)

22.48.160 Sewer damage.

A. No City tree shall be removed or otherwise be treated because of sewer-related damage allegedly caused by such tree until the Commissioner has reviewed the matter and approved the appropriateness of such removal or treatment.

B. No City tree shall be considered for removal by the Commissioner until the alleged sewer-related damage is substantiated by the submission of paid bills or receipts by the property owner requesting the removal. Any such bills or receipts must be determined by the Commissioner to be directly attributable to root-related damage. Any person who knowingly falsifies or submits fraudulent bills or receipts is in violation of this chapter.

C. The Commissioner may waive the requirements of Subsection B of this section of this chapter if the tree has been listed as undesirable for street tree use under this chapter or is determined by the Commissioner to be in an unsafe and/or unhealthy condition.

D. Each City tree removed for sewer-related damage shall be replaced with three trees with a caliper size of no less than 2.5 inches per tree. The species of such replacement trees shall be determined by the Commissioner. The Commissioner, where site conditions permit, shall plant a replacement tree at the site where the tree was removed and two additional trees at locations

of his choosing within the ward where the tree removal occurred. If the site of the tree removal is not suitable for a replacement tree then a replacement tree shall be planted at a location within the ward where the removal occurred, as determined by the Commissioner. The cost of said replacement trees shall be charged by the Commissioner to the tree planting account or similar account of the Alderman of the ward where the removal occurred.

E. The Commissioner shall not proceed with the removal of any tree for sewer-related damage until sufficient funds are available for replacement trees pursuant to Subsection D, unless the safety or stability of the tree is in question, or the need for removal is urgent in the judgment of the Commissioner. (1994 C., § 22.48.160; Ord. No. 68607, § 17, 3-16-2010.)

22.48.170 Sidewalk damage.

A. It shall be the duty of property owners to notify the City when any City tree located street adjacent to their property is believed to be causing damage to any public sidewalk or other pedestrian thoroughfare. It shall further be the duty of the property owner, in a timely manner, to keep the surface portion of such sidewalk or pedestrian thoroughfare free of seed, leaf, twig and any other debris created and otherwise dropped by the natural growth of the tree so as to allow the reasonable and safe passage of pedestrian traffic.

B. Where damage to a sidewalk or curb occurs due to the close proximity or growth of City tree roots, the Division shall make every reasonable effort to correct the problem without damaging or injuring the tree.

C. In cases where tree removal is necessary, the Commissioner shall not proceed with removing the tree until he receives confirmation from the Street Division that it has scheduled the repairs, unless the safety or stability of the tree, shrub or plant is in question, or the need for removal is urgent in the judgment of the Commissioner.

D. Each tree removed on City property for sidewalk-related damage shall be replaced with three (3) trees with a caliper size of no less than 2.5 inches per tree. The species of such replacement trees shall be at the determination of the Commissioner. The locations of such replacement trees shall be determined in like manner as are the locations of replacement trees under Section 22.48.160.D. The cost of said replacement trees shall be charged by the Commissioner to the tree planting account or similar account of the Alderman of the ward where the removal occurred.

E. The Commissioner shall not proceed with the removal of any tree for sidewalk-related damage until sufficient funds are available for replacement trees pursuant to Subsection D of this section, unless the safety or stability of the tree is in question, or the need for removal is urgent in the judgment of the Commissioner. (1994 C., § 22.48.170; Ord. No. 68607, § 18, 3-16-2010.)

22.48.180 Mutilation or theft of trees, shrubs or plants on City property.

A. No person shall break, mutilate, injure, poison, destroy, remove or otherwise alter or disrupt any tree, shrub or plant or any other related vegetative improvement on City property.

B. The practice of tree topping, defined as the practice of cutting back branches of trees to stubs or lateral branches that are not large enough to assume a terminal role, is prohibited on all City trees. The Commissioner's determination on whether a tree has been topped or not shall be final.

C. Except as provided in this section, no person shall fasten or attach any wire, rope, sign, handbill or other thing to any tree, shrub or plant growing on City property, nor to any guard or protection of such tree, shrub or plant.

D. No person shall without written permission of the Commissioner attach any wire, insulator or support device of any nature used for telecommunications or electric transmission or distribution to any tree, shrub or plant growing on City property.

E. No person shall without written permission of the Commissioner attach, hang or suspend lights or lighting devices of any kind to any tree, shrub or plant growing on City property.

F. Lights or lighting devices of any kind which the Commissioner permits to be attached, hung or suspended from any tree, shrub or plant must be installed so as to be least damaging to the tree, shrub or plant as prescribed by the Commissioner and cannot remain in the tree, shrub or plant for longer than one hundred twenty days. The person permitted to install the lights or lighting devices shall be responsible for removing them in a manner least damaging to the tree, shrub or plant within the prescribed period of time or be deemed in violation of this section.

G. All lights or lightning devices that are in violation of this section are hereby declared public nuisances and subject to treatment and abatement as such by the Commissioner.

H. Any person having any wire charged with electricity shall securely fasten the same so that such wire shall not come in contact with any tree, shrub or plant growing on City property.

I. No person shall permit any toxic or injurious chemical or substance to seep, drain or be emptied on or within the critical root zone of any City tree.

J. Without written permission from the Commissioner, no person shall place or maintain upon the ground any stone, cement or other impervious material or substance in such a manner as may obstruct the free access of air and water within a City tree's critical root zone. Any stone, cement or other impervious material placed or maintained in violation of this subsection is hereby declared a public nuisance and subject to treatment and abatement as such by the Commissioner.

K. Without written permission from the Commissioner, it shall be unlawful for any person to install grates or any other covering over the tree box or well of any City tree. Such grates and other coverings shall be considered an extension of the pedestrian walk which they adjoin and are the responsibility of the adjacent property owner to maintain in a condition that is safe for passing pedestrian traffic.

L. No person shall maintain a grate or other covering over the tree box or well of any City tree in a condition that is injurious to such tree or to the safety of passing pedestrian traffic. Any grate or other covering found in violation of this section is hereby declared a public nuisance and is subject to treatment and abatement as such as by the Commissioner.

M. Any person who violates Subsection B of this section shall be subject to a fine of five hundred dollars per affected tree. Any person found in violation of any other provision of this section shall be subject to the a fine of up to $500.00, and including any necessary repair and replacement costs defined in Section 22.48.240 of this chapter required to replace or restore the condition of the affected tree, plant, shrub or landscape. (1994 C., § 22.48.180; Ord. No. 68607, § 19, 3-16-2010.)

22.48.190 Tree lawn and parkway planting requirements and criteria.

A. The appearance and maintenance by adjacent owners of those portions of street rights-of-way in the City, commonly referred to as the tree lawn, have a substantial impact on the appearance of City neighborhoods and streets and a significant relationship to property values. Deterioration of street landscapes occurs when inappropriate plants and landscape items are installed that are incompatible with the landscape of a given area, neighborhood or business district or are not, or cannot be, maintained to acceptable standards of appearance. This results in a reduction of property values, poor appearance and the impairment of the public health, safety and welfare. Therefore, the City declares it has a governmental interest in regulating the types of vegetation and landscape items installed in its street right-of-way and may establish criteria for the maintenance of said items. Provided, this section shall not apply to the Division or to contractors.

B. Shrubs, plants and other landscape features or items now or hereafter growing or set out, placed, planted or raised in the right-of-way of any street or alley and on all City property by any person other than the City, that are in violation of the provisions of this section are hereby declared public nuisances and subject to treatment and abatement as such. The Commissioner is hereby authorized to remove, trim or otherwise treat any shrub, plant or landscape feature or item found in violation of this section without warning or notification.

C. The City, its officers and employees shall have no liability for landscape features, shrubs, plants or other items placed or otherwise installed in or on any City property by any person not acting under the authority of a permit or on behalf of the City to install said items. The person installing said items assumes all responsibility and liability for their maintenance and upkeep unless otherwise provided by ordinance, contract or other agreement.

D. Fire hydrants shall have a clear area established around them which shall consist of a circle 4 feet in radius measured from the center point at the top of the hydrant and 6 feet in height as measured upwards from the highest point of ground immediately adjacent to the hydrant. Vegetation of any type that is intended to be grown or otherwise maintained at a height that exceeds twelve inches shall not be planted or otherwise maintained in such clear area. In addition, a clear unobstructed field of vision of not less than thirty degrees from each side of a perpendicular line drawn from the top of the fire hydrant to the nearest curb or street line must also exist. Vegetation adjacent to the

clear area prescribed in this subsection shall be maintained in such a way that it does not overgrow or otherwise overhang into such clear area.

E. Water meter pits, vaults and service shutoffs shall have a clear area established around them which shall consist of a circle two feet in diameter measured from the center of the pit, vault or valve and extending six feet in height as measured upwards from the highest point of ground immediately adjacent to the pit, vault or valve. Vegetation of any type that is intended to be grown or otherwise maintained at a height that exceeds twelve inches shall not be planted or otherwise maintained in such clear area. Vegetation adjacent to such clear area shall be maintained in such a way that it does not overgrow or otherwise overhang into such clear area.

F. The placement of any shrubs, plants or landscape features or items with a maintainable mature height of more than twelve inches is prohibited within fifteen feet from any street corner.

G. Street light poles, public utility poles, traffic signals and street signs of any type shall be kept free of all climbing or creeping vegetation.

H. Climbing or creeping vegetation growing on any City tree is subject to removal if deemed by the Commissioner to be detrimental to the tree's continued growth or health.

I. Any tree, shrub or plant that is known to possess features or growth characteristics that make all or parts of them poisonous, allergenic or invasive in nature shall be subject to immediate destruction and removal by the Commissioner and shall be prohibited from use on any City property. Such vegetation shall include, but is not limited to, Cirsium arvense (Canada thistle), Convolvulus arvensis (Field bindweed), Sorghum halepense (Johnsongrass), Pueraria lobata (kudzu), Rosa multiflora (Multiflora rose), Lythrum salicara (purple loosestrife), Dipsacus fullonum (Common teasel), Dipsacus laciniatus (Cutleaf teasel), Carduus nutans (Musk thistle), Onopordum acanthium (Scotch thistle), Lonicera japonica (Japanese honeysuckle), Lonicera morrowii (Morrow's honeysuckle), Lonicera maackii (Amur honeysuckle), Alliaria petiolata (Garlic mustard), Toxicodendron Radicans (Poison ivy), Toxicodendron diversilobum (Poison oak), Xanithium sp. (Cocklebur), Datura stramonium (Jimsonweed) and any tree, shrub or plant that is determined by the Commissioner to be alleopathic to adjacent City trees, shrubs or plants, diseased or infested, an alternative host for a tree, shrub or plant disease or habitat for a tree, shrub or plant disease vector.

J. Any person who installs any tree, shrub or plant in violation of Subsections D through I of this section shall be subject to a fine of one hundred dollars for each tree or shrub planted in addition to removal, replacement or remediation costs as provided for in Section 22.48.240.

K. The installation, construction or erection of raised planters or landscape walls around the trunks of trees after their installation is detrimental to the long-term health of trees and is hereby prohibited around any City tree unless approved by the Commissioner. The use of ornamental or landscape edging is prohibited around City trees unless it is located far enough way so as not to cut into the root flare of the tree or restrict or impede its growth, does not extend more than four inches above the soil line at its highest point, and does not entail soil excavation greater than a trench or hole six inches wide and three inches deep as measured from the soil line.

L. Any person wishing to install, place, or construct any non-vegetative landscape feature or item, including, but not limited to, raised planters, retaining walls, decorative or ornamental rocks, fencing or any kind of landscape rock within any street or alley right-of-way in the City shall first obtain a landscape permit from the Commissioner authorizing such items.

M. Any person wishing to install and plant a "landscape bed," hereby defined as a grouping of plants of similar or dissimilar type in an area of landscape that is more or less continuous in nature and greater than nine square feet in size in any street or alley right-of-way in the City, shall first obtain a landscape permit authorizing such bed from the Commissioner.

N. The issuance of landscape permits under this section shall be in accordance with any applicable provisions of Section 22.48.120.

O. Any person that fails to obtain a landscape permit as required by Subsection M of this section commits a violation of this chapter punishable by a fine of one hundred dollars plus any removal, replacement or remediation costs as provided for in Section 22.48.240.

P. The disturbance of the critical root zone of any City tree, with the exception of trees already planned or otherwise authorized for removal by the Commissioner, by any tillage method, hand or mechanical, for the purpose of installing landscape plants, features or

items is prohibited, unless expressly approved and monitored by the Commissioner. (1994 C., § 22.48.190; Ord. No. 68607, § 20, 3-16-2010.)

22.48.200 Private tree hazards.

A. Any tree in the City determined by the Commissioner to be:

1. Dead, defective, diseased, infested or decayed and to threaten real property or users thereof; or

2. Alleopathic to adjacent City trees or an alternative host for a tree disease or a habitat or breeding habitat for a tree disease vector; or

3. Not grown or otherwise maintained by the property owner to meet all applicable tree clearance standards provided for by Section 22.48.140;

is hereby declared a public nuisance and subject to treatment and abatement as such by the Commissioner. The Commissioner shall be authorized to order the treatment and abatement of any such tree. After thirty days of said order being issued the Commissioner may enter upon any lot or parcel of land within the City for the purpose of treating or abating such nuisance and may bill the owner pursuant to Subsection D of this section.

B. The Commissioner shall serve treatment and abatement orders, as authorized in this section, to property owners found in violation of this section by personal service, or by U.S. mail to the person to whom was sent the tax bill for general taxes for the preceding year, or to the current owner of record. Such notice shall identify the street address of the property, the problem conditions, and what is required of the property owner to be in compliance with this section and/or Section 22.48.140.

C. Any notice served on a property owner by the Commissioner under the provisions of this section may be appealed to the Board of Public Service whose decision in the matter shall be final. Any appeal from an order of the Commissioner under this section must be filed within ten days of receipt of such order on such forms as may be determined by the Commissioner and approved by the Board of Public Service.

D. The Commissioner shall bill the owner of any lot or parcel of land on which the City or a City contractor abates or treats any tree under the provisions of this section for the cost of such abatement and/or treatment. Any such bill issued by the Commissioner pursuant to this section that is unpaid ninety (90) days after it is first mailed may be sent to a collection agency for collection and shall bear interest at the rate allowed by law for judgment in civil actions.

E. All monies collected as provided in Subsection D of this section shall be transmitted daily to the Treasurer of the City of St. Louis in the form and manner prescribed by the Comptroller.

F. When the condition of a tree is such that the Commissioner believes it is in imminent danger of falling or is creating an immediate hazard to the safety of the general public which is too great a risk to leave uncorrected while standard procedures for giving notice are followed, the Commissioner may, in his discretion, enter onto any lot or parcel of land in the City and abate or otherwise remediate the condition without following said procedures.

G. Any owner of a lot or parcel of land upon who fails to comply with an order issued from the Commissioner pursuant to this section within thirty days of receipt of such order violates this section and shall be punishable by a fine of two hundred fifty dollars. (1994 C., § 22.48.200; Ord. No. 68607, § 21, 3-16-2010.)

22.48.210 Private tree disclaimer.

Nothing in this chapter shall be deemed or construed to relieve the owner of any private property from the duty to keep and maintain any tree located on their property in a condition such as to prevent it from becoming a hazard to adjacent private and public property; and to prevent it from becoming a hazard or an impediment to travel or vision upon any street, alley, sidewalk or other public place in the City, or to impose any liability upon the City, its officers or employees in connection with any tree located on private property. (1994 C., § 22.48.210; Ord. No. 68607, § 22, 3-16-2010.)

22.48.220 Enforcement.

A. The Commissioner shall be responsible for the administration and implementation of this chapter. He may serve notice to any person in violation thereof and may report violations to the Police Department and City Counselor for appropriate proceedings, which are each hereby directed to take all appropriate actions to assist in the enforcement of this chapter.

B. In instances where a person is found to be maintaining or removing or destroying a City tree in the absence of an appropriate permit for such action in their possession, the Police Department shall require such person to cease such operations until the necessary permit and/or certification is obtained pursuant to

this chapter. (1994 C., § 22.48.220; Ord. No. 68607, § 23, 3-16-2010.)

22.48.230 Interference.

It shall be a violation of this chapter for any person:

A. To impede, hinder, delay or interfere with the Commissioner or the Division or any person acting under the Commissioner's authority in the administration or enforcement of any provision of this chapter.

B. To impede, hinder, delay or interfere with the Commissioner or his subordinates while engaged in the planting, pruning, spraying, cultivating, maintaining or removal of any tree, shrub or plant located on City property.

C. To impede, hinder, delay or interfere the Commissioner or his subordinates from entering onto private property for the purposes of carrying out their lawful duties under this chapter.

D. To impede, hinder, delay or interfere with a Contractor in the fulfillment of his contractual obligations for the planting, pruning, spraying, cultivating, maintaining or removal of any tree, shrub or plant located on City property.

E. To impede, hinder, delay or interfere with a contractor in the fulfillment of his contractual obligations from entering onto private property for the purposes of carrying out his lawful duties. (1994 C., § 22.48.230; Ord. No. 68607, § 24, 3-16-2010.)

22.48.240 Penalty; replacement and repair costs.

A. Except as otherwise provided by this chapter, any person who violates any provision of this chapter shall be punishable by a fine of not less than one hundred dollars and not exceeding five hundred dollars or by imprisonment up to thirty (30) days, or both such fine and imprisonment for each separate offense. All such violations that are of a continuing nature shall constitute a separate offense for each day the violation continues. If, as a result of the violation, the injury, mutilation or death of a tree, shrub or plant located on City property occurs, the cost of the repair and/or replacement as provided in Subsection B of this section shall be included in the calculation of the fine, up to the maximum of five hundred dollars.

B. Where this chapter provides that the replacement and repair costs for trees, shrubs or plants shall be assessed as a fine or penalty, said costs shall be calculated by the Commissioner as follows:

1. Replacement and repair costs for trees less than 10 inches in size at diameter breast height or with an aggregate diameter of less than 15 inches at diameter breast height shall be the retail price of a similar or same sized and species tree plus the equipment and labor costs required by the Division or any contractor or person acting on behalf of the Division to remove and replace said tree.

2. Replacement and repair costs for trees that exceed 10 inches in size at diameter breast high or with an aggregate diameter of larger than 15 inches shall be their value, as determined using the most recent edition of the Guide for Plant Appraisal as prepared by the Council of Landscape Appraisers, plus the equipment and labor costs required by the Division or any contractor or person acting on behalf of the Division to remove and replace said tree.

3. Costs to repair or remediate tree, shrub or plant damage and/or the repair, replacement or restoration of any element or feature of landscape, hardscape or infrastructure shall be determined based upon the equipment, labor and material costs for the Division and/or other City departments or public agencies required to perform said services or the equipment, labor and material costs of any contractor performing such services.

4. Shrubs and plants shall have their value determined by the retail price of a shrub or plant of a similar size and species, plus the equipment and labor costs required to remove and replace said shrub or plant by the Division or by a contractor.

5. In lieu of prosecution for a violation of this chapter, the Commissioner is authorized to bill any person who causes expense to the City as calculated under this section, and to refer such bill which is unpaid ninety days after it is first mailed to a collection agent for collection, subject to applicable law. (1994 C., § 22.48.240; Ord. No. 68607, § 25, 3-16-2010.)

22.48.250 Injunctive relief.

Whenever there exists reasonable cause to believe that any person is violating any provision of this chapter or any term, condition or provision of an approved permit, the City may, either before or after the institution of any other action or proceeding authorized by this chapter, institute an action for a mandatory or prohibitory injunction and/or an order of abatement as the City deems appropriate in the circumstances. Injunctive relief under this section shall not relieve any person from any otherwise applicable fine or penalty. (1994 C., § 22.48.250; Ord. No. 68607, § 26, 3-16-2010.)

22.48.260 Regulations.

A. The Commissioner is authorized to issue regulations as provided by this section. Any such regulations shall be consistent with this chapter and other applicable law, and shall be subject to approval prior to issuance by the Director, the Board of Public Service and the City Counselor's Office. Any such regulations shall be kept on file at the Division's office and in the City Register's Office.

B. Such regulations may address the following matter or subjects:

1. Whether, consistent with sound biological science, any particular type of vegetation shall be classified as a plant, shrub, tree or weed for purposes of this chapter;

2. Conditions for permits issued pursuant to Sections 22.48.100 and 22.48.110;

3. Standards for appropriate height and spatial clearances for City trees, as contemplated by Section 22.48.140.A and for the growth and maintenance of trees, shrubs and plants anywhere within the City so as to prevent obstruction, as contemplated by Section 22.48.140.B;

4. Rules for protection of City trees at construction sites, in addition to the provisions of Section 22.48.150;

5. Poisonous, allergenic or invasive plants in addition to those prohibited by Section 22.48.190. (1994 C., § 22.48.260; Ord. No. 68607, § 27, 3-16-2010.)

Title 23

PUBLIC UTILITIES

For department of public utilities, see Ch. 3.30

By vote of the people of the City and County of St. Louis on February 9, 1954, a plan submitted by a Board of Freeholders under the provisions of Article VI, Sections 30(a) and 30(b), Constitution of Missouri 1945, was adopted creating the Metropolitan St. Louis Sewer District (M.S.D.) which took over ownership and control of all public sewers in the City of St. Louis. The validity of the creation of M.S.D. was upheld by the Supreme Court of Missouri, en banc, in *State on inf. of Dalton v. Metropolitan St. Louis Sewer District,* 365 Mo. 1, 275 S.W. 2d 225 (1955).

The validity of the sale of previously authorized sewer bonds by the City of St. Louis and the use of the proceeds thereof in cooperation with M.S.D. was upheld in *Petition of the City of St. Louis,* 363 S.W. 2d 612 (Mo. 1963).

Metropolitan St. Louis Sewer District could not raise sewer charges without voter approval. *Beatty v. Metro. St. Louis Sewer Dist.,* 867 S.W. 2d 217 (Mo. banc 1993).

Sewer district had authority to enact ordinances authorizing liens on property served for delinquent sewer service charges, but did not have power to enact ordinances giving liens priority over previously recorded deeds of trust. *St. Louis Inv. Properties v. Sewer Dist.,* 873 S.W. 2d 303 (Mo. App. E.D. 1994).

Requirement that city and county circuit judges approve trustees of Metropolitan St. Louis Sewer District violated article V, section 4, of Missouri Constitution. *State ex rel. City of St. Louis v. Mummert,* 875 S.W. 2d 108 (Mo. banc 1994).

Charter:

Art. I § 1(11) Public utilities

Art. I § 1(12) Franchises

Art. I § 1(13) Regulation of public utilities

Art. XIX Franchises

RSMo:

RSMo 393.108 et seq. (2016) Regulation of gas, electric, water and heating companies

Chapters:

Division I. Water

23.02 Water Division

23.04 Water Pipe Attachments

23.06 Water Bills

23.08 Access to Meters

23.10 Abuse of Water Privileges

23.11 Tampering with Fire Hydrants

23.12 Water Connection Repairs

23.14 Use of Neighbor's Water

23.16 Flat Rates for Water

23.18 Meter Rates for Water

23.20 Meter Rates for Public or Charitable Institutions or Hospitals

23.22 Water for Certain Lot Owners

23.24—23.28 (Reserved)

Division II. Taxation

23.29 Exclusion from Taxes

23.30 Electrical Companies Gross Receipts Tax

23.32 Telephone and Telegraph Companies Gross Receipts Tax

23.34 Telephone Company Alternative Tax

23.36 Gas Company Gross Receipts Tax

23.38 Water Works Revenue Fund Tax

23.40 Lateral Sewer Line Repair Fee

23.41 Natural Gas Transportation License Fee

Division III. Poles, Wires and Conduits

23.42 Underground District

23.44 Electrical Apparatus

23.46 Manholes and Service Boxes

23.48 Underground Conduits

23.50 Fire Alarm Wires

23.52 Telephone and Telegraph Companies

23.54 Gas Companies

23.56 Reconnection of Terminated Service

23.57—23.58 (Reserved)

23.59 Small Wireless Facilities

Division IV. Public Lighting

23.60 Public Lighting

23.64 Communications Transmission Systems

DIVISION I. WATER

RSMo:

RSMo 71.700 (2016) Water supply—authorization to regulate and license

RSMo 71.710 (2016)Water supply—protection of sources

RSMo 71.530 (2016) Municipality may contract for utilities

RSMo 71.540 (2016) Municipal water supply—contracts

RSMo 91.010 (2016) Cities empowered to erect and maintain water works

Chapter 23.02

WATER DIVISION

City Counselor Ops.: 8220

Sections:

23.02.010 Water Commissioner.

23.02.020 Composition.

23.02.030 Supply and Purifying Section Engineer.

23.02.040 Operating Section Engineer.

23.02.050 Distribution Section Engineer.

23.02.010 Water Commissioner.

The Director of Public Utilities is authorized to appoint, in accordance with the Charter and ordinances of the City, a Water Commissioner, who shall be the head of the Water Division, and whose duties shall be those prescribed in the Charter.

He shall be an engineer in active practice of his profession, who has had at least ten years' experience in responsible charge of engineering work, and who shall be qualified to design, construct, operate and maintain all machinery, apparatus and appurtenances necessary for the water supply of a large city.

He shall be charged with the enforcement of all ordinances now existing or that may hereafter be passed relating to the operation and maintenance of the waterworks and to the assessment of the water rates.

He shall give bond in the sum of twenty thousand dollars. (1948 C., Ch. 55, § 30; 1960 C., § 545.010; 1994 C., § 23.02.010.)

McQuillin:

12.48 Water department

23.02.020 Composition.

There is established in the Water Division of the Department of Public Utilities the following offices, sections and branches thereof:

A. Commissioner's Office;

B. Supply and purifying section;

C. Operating section;

D. Operating section, sanitarium branch;

E. Distribution section;

F. Assessment section. (1948 C., Ch. 55, § 31; 1960 C., § 545.020; 1994 C., § 23.02.020.)

City Counselor Ops.: 8247

23.02.030 Supply and Purifying Section Engineer.

The engineer in charge of the supply and purifying section of the Water Division shall be an engineer of at least five years' experience in charge of surveys, estimates, construction and operation of works relating to water supply and purification. He shall be qualified to supervise chemical treatment of water and its filtration, to direct the operation and maintenance of the waterworks railway and of the towers, tunnels, basins, reservoirs, conduits and all other appurtenances of the Water Division coming under the supply and purifying section. (1948 C., Ch. 55, § 32; 1960 C., § 545.030; 1994 C., § 23.02.030.)

23.02.040 Operating Section Engineer.

The engineer in charge of the operating section shall be an engineer of at least five years' experience in charge of the design and construction of pumping stations. He shall be qualified to direct the operation and maintenance of pumping station machinery, steam boilers and furnaces, electric generators and motors, the waterworks railway, heating and refrigerating systems, machine shop equipment, to inspect material and shop work and to determine by test the efficiency of pumps, boilers, generators, motors and all pumping station appliances. (1948 C., Ch. 55, § 33; 1960 C., § 545.040; 1994 C., § 23.02.040.)

23.02.050 Distribution Section Engineer.

The engineer in charge of the distribution section shall be an engineer of at least five years' experience in the design and construction of pipe systems for the distribution of water. He shall be qualified to supervise the manufacture and inspection of steel and cast iron pipes, hydrants, valves, meters, special castings and fittings, to direct the laying of water pipe with all its appurtenances, to superintend the extension and repairs to the pipe system and maintain the water service to consumers. (1948 C., Ch. 55, § 34; 1960 C., § 545.050; 1994 C., § 23.02.050.)

Chapter 23.04

WATER PIPE ATTACHMENTS

Sections:

23.04.010 Water Division to enforce rules.
23.04.020 Person making attachments to give bond.
23.04.030 Bonded plumbers to procure permit.
23.04.040 Permit—Application.
23.04.050 Permit—When issued.
23.04.060 Permit—Restrictions on granting.
23.04.070 Service pipe repairs—How made.
23.04.071 Payment.
23.04.072 By whom performed.
23.04.073 Effective date.
23.04.074 Severability.
23.04.075 Surcharge for leak repair—Levied.
23.04.076 Surcharge for leak repair—Effective date.
23.04.077 Surcharge for leak repair—Special account established.
23.04.078 Surcharge for leak repair—Fee waiver.
23.04.079 Surcharge for leak repair—Report of receipts.
23.04.079.1 Surcharge for leak repair—Report review—Surcharge increase.
23.04.079.2 Surcharge for leak repair—Contracting—Wards designated.
23.04.079.3 Surcharge for leak repair—Contracting—Minority participation.
23.04.079.4 Surcharge for leak repair—Leak determination.
23.04.079.5 Licenses and permits expense.
23.04.080 Taps—Furnished by Commissioner—Who may tap pipes—Size.
23.04.090 Taps—General regulations.
23.04.100 Taps—Price.
23.04.110 Service pipes—Laying.
23.04.120 Service pipes—Specifications.
23.04.130 Service pipes—Laying in sewer trench.
23.04.140 Temporary service pipes.
23.04.150 Stopcocks.
23.04.160 Service during building construction.
23.04.170 Stop and waste cock.
23.04.180 Stop boxes.
23.04.185 Stop boxes over shut off valves—Accessibility.
23.04.190 Plumber to shut off water in new building after testing.
23.04.200 Shutoff fee.
23.04.210 Regulations for large connections, six-inch and larger.
23.04.211 Pipe specifications.
23.04.212 Fittings.
23.04.213 Rubber gasket joints.
23.04.214 Polyethylene encasement.
23.04.215 Cement mortar lining.
23.04.216 Pipe installation.
23.04.217 Meter boxes and valve boxes.
23.04.218 Permits, excavation, backfilling and pavement replacement.
23.04.220 Fire protection connections.
23.04.225 Lawn sprinklers.
23.04.230 Weekly report by plumbers.
23.04.240 Nonissuance of tap permits.

23.04.010 Water Division to enforce rules.

The Water Division of the Department of Public Utilities is authorized to enforce the following rules and regulations regarding all attachments to water pipes. (1948 C., Ch. 55, § 35; 1960 C., § 547.010; 1994 C., § 23.04.010.)

23.04.020 Person making attachments to give bond.

No person shall make any attachment or connection with the pipes of the City waterworks, nor make any repairs, additions to, or alterations of, any pipe or fixture connected therewith unless he has given the bond required to be given by plumbers. (1948 C., Ch. 55, § 36; 1960 C., § 547.020; 1994 C., § 23.04.020.)

23.04.030 Bonded plumbers to procure permit.

Any bonded plumber desirous of introducing water from the waterworks to any premises, or of making any repairs, additions to or alterations of any pipe or fixture supplied with water from the waterworks, shall first procure a permit from the Water Commissioner. (1948 C., Ch. 55, § 37; 1960 C., § 547.030; 1994 C., § 23.04.030.)

23.04.040 Permit—Application.

All applications for permits must be in writing upon blank forms furnished by the Water Commissioner. The application shall state the location of the premises, the full name of the owner of the property, the several and various uses for which water is wanted, and such other information pertaining to the subject as the Water Commissioner may require. (1948 C., Ch. 55, § 38; 1960 C., § 547.040; 1994 C., § 23.04.040.)

23.04.050 Permit—When issued.

A permit for making an attachment to the water mains, or additions, alterations or repairs of pipes supplied with water from the waterworks, will be issued by the Water Commissioner upon presentation of a certificate of the supervisor of plumbing, stating that the proposed work is approved by him, and upon the payment of the cost of the tap, plus two dollars for inserting the tap in the water main. Permits for attachment to private pipe will be granted only when the written consent of the owner of the pipe is filed with the Water Commissioner. (1948 C., Ch. 55, § 39; 1960 C., § 547.050; 1994 C., § 23.04.050.)

City Counselor Ops.: 9946

23.04.060 Permit—Restrictions on granting.

Permits for attachments for building purposes will not be granted until the building license has been paid. Permits for attachments will not be granted when the service pipe passes over or through premises, which at the time are or may thereafter become the property of persons other than the owner of the premises to be supplied by such attachments.

Permits for attachment to private pipe will not be granted if there be a main pipe, whether in front or rear of the premises to be supplied. No premises shall be supplied with connections for fountains, stand pipes or pipes for fire protection unless water is furnished to the same premises for other purposes by a separate connection.

Permits for attachments for public fountains shall not be granted until the pattern of the fountain to be used shall be approved by the Board of Public Service. (1948 C., Ch. 55, § 40; 1960 C., § 547.060; 1994 C., § 23.04.060.)

23.04.070 Service pipe repairs—How made.

Whenever any underground service pipe or its attachment that leads from any water main that is maintained by the City Water Division to and including the service line, T-head valve, and stop box and its cover, which line exceeds one year in age and is found to be leaking or is otherwise determined by the Water Commissioner to be in need of repair or replacement, and the water assessment is billed to any flat rate residential or metered account having six or less dwelling units, it shall be the duty of the City Water Division to repair same, if the leak is located within any public street, alley, right-of-way or easement. Whenever any service pipe or attachment leading from the outlet side of the T-head valve to the delivery connection on the premises is out of repair and the owner of said premises, his agent or the occupant thereof refuses or neglects to repair said defect immediately, the water shall be shut off by the Water Commissioner. In case of repairs requiring immediate attention and constituting as emergency impairment, the water shall be shut off by the Water Commissioner without notice until such repairs are made by the owner of the premises, his agent, or the occupant thereof. Said public street, alley, right-of-way or easement shall be left as nearly as possible in a condition of repair as the same is required by the Code of the City of St. Louis. (1948 C., Ch. 55, § 42; 1960 C., §§ 547.080, 547.090; 1994 C., § 23.04.070; Ord. No. 63653, § 1, 1996; Ord. No. 59363, § 1, 1985; Ord. No. 58597, § 2(part), 1982.)

Submission Ordinance No. 63653

Submission Ordinance Approved February 27, 1996.

Amendment Substance: Added repair coverage for "stop box and its cover."

Voter Adoption Date: August 6, 1996.

City Counselor Ops.: 8837

23.04.071 Payment.

A bill for the cost of shutting off the water as authorized by Section 23.04.070 shall be presented to each said owner, his agent or the occupants thereof; if the bill is not paid within ten days of presentation, the Water Commissioner shall thereafter shut off the water, and may withdraw the tap or cut off the attachments from the main pipe, and no further license for water at such premises shall be issued until the cost incurred in making the disconnection has been paid. (1994 C., § 23.04.071; Ord. No. 58597, § 2(part), 1982.)

23.04.072 By whom performed.

All repairs made by the City Water Division to comply with the requirements of Sections 23.04.070 through 23.04.074 shall be made by licensed plumbers which are being paid the prevailing hourly wage rates as

determined by the Department of Labor and Industrial Relations of Missouri. (1994 C., § 23.04.072; Ord. No. 58597, § 2(part), 1982.)

23.04.073 Effective date.

Sections 23.04.070 through 23.04.074 shall not become effective until funded via a separate surcharge ordinance. Said surcharge shall be added to each qualified water customer's account. Funds generated from the surcharge shall be deposited to the office of the Treasurer and thereafter kept in a separate and distinct account from all other funds. (1994 C., § 23.04.073; Ord. No. 58597, § 2(part), 1982.)

23.04.074 Severability.

If any provision, section, paragraph, sentence or clause of Sections 23.04.070 through 23.04.074, or its application to any person or circumstance, is for any reason held to be invalid or unconstitutional by any decision of any court of competent jurisdiction, such division shall not affect the validity of the remaining portions of Sections 23.04.070 through 23.04.074, and to this end the provisions are held to be severable. The Board of Aldermen declares that it would have passed Sections 23.04.070 through 23.04.074, and each provision, section, paragraph, sentence, and clause hereof, irrespective of the fact that any one or more of the provisions, sections, paragraphs, sentences, clauses hereof be declared invalid or unconstitutional. (1994 C., § 23.04.074; Ord. No. 58597, § 2(part), 1982.)

23.04.075 Surcharge for leak repair—Levied.

There is hereby levied an initial surcharge of three dollars ($3.00) per quarter on the water bills of all flat rate residential accounts and metered residential accounts having six (6) or less dwelling units, to provide the funds needed to pay the cost of the repairs to leaking service lines as provided in Section 23.04.070. (1994 C., § 23.04.075; Ord. No. 65815, § 1, 2003; Ord. No. 64721, § 1, 1999; Ord. No. 61172, § 1, 1988; Ord. No. 59363, § 2, 1985.)

23.04.076 Surcharge for leak repair—Effective date.

The surcharge and eligibility for leaking service line repairs shall become effective seven (7) months from the first day of the month immediately following final approval of this chapter and provided that approval is first received from the voters of the City as provided herein. Any accounts, which have been issued leak notices prior to that date, shall not be eligible to have the leak repaired under this program. (1994 C., § 23.04.076; Ord. No. 59363, § 3, 1985.)

Editor's Note:

Ordinance 59363 was approved February 5, 1985. Voter approval was received April 2, 1985.

23.04.077 Surcharge for leak repair—Special account established.

The Comptroller is hereby authorized and directed to establish a special account for the deposit of said surcharge and, on the last day of each month, shall transfer from the Waterworks Revenue Fund the funds generated that month from said surcharge to the special account. Funds generated by the surcharge shall be deposited in said special account and shall be kept separate and apart from all other funds. The funds so collected and deposited in said special account shall be used solely for the purpose of paying for the costs reasonably associated with and necessary to administer and carry out the leaking service line project established by said Ordinance No. 58597. All interest generated on deposited funds shall be accrued to the special account so established. (1994 C., § 23.04.077; Ord. No. 59363, § 4, 1985.)

Editor's Note:

Ordinance 58597 is codified in Sections 23.04.070 through 23.04.074.

23.04.078 Surcharge for leak repair—Fee waiver.

The Collector of Revenue for the City shall waive all fees pursuant to the collection and related processing of this surcharge. (1994 C., § 23.04.078; Ord. No. 59363, § 5, 1985.)

23.04.079 Surcharge for leak repair—Report of receipts.

The Water Commissioner shall review the receipts and the expenditures of funds involved in said leakage service line project and shall make a written report to the Board of Estimate and Apportionment setting forth in sufficient detail the receipts and expenditures for the last six (6) months and the anticipated receipts and expenditures for the next six (6) months. Said report shall be delivered to the Board of Estimate and Apportionment before the last day of the month immediately following the end of each six (6) month period from the beginning of the effective date set by Section 23.04.076. Provided, however, that the Water Commissioner may report at any time to the Board of Estimate and Appor-

tionment if conditions so warrant. (1994 C., § 23.04.079; Ord. No. 59363, § 6, 1985.)

23.04.079.1 Surcharge for leak repair—Report review—Surcharge increase.

The Board of Estimate and Apportionment shall, upon receipt of the written report from the Water Commissioner, thoroughly review said report and is hereby authorized and directed to recommend to the Board of Aldermen an increase in said surcharge, if, and only if, the current level of surcharge will be insufficient to meet the anticipated costs of the leaking service line project. If the Board of Estimate and Apportionment determines that such an increase is necessary it shall only recommend such an increase sufficient to cover the anticipated costs and in no event beyond that level authorized by law. Further, the Board of Estimate and Apportionment shall recommend to the Board of Aldermen a decrease in the surcharge if it determines that the existing level is higher than necessary to cover the anticipated costs of the project. Only the Board of Aldermen shall have authority, by ordinance, to increase or decrease the surcharge herein established. (1994 C., § 23.04.079.1; Ord. No. 59363, § 7, 1985.)

23.04.079.2 Surcharge for leak repair—Contracting—Wards designated.

The Board of Public Service is hereby authorized and directed to let contracts for each service area on an annual basis under the normal contracting procedure authorized under the Charter. For the purpose of awarding annual contracts to furnish all labor, materials, equipment and supervision necessary to repair leaking water service lines funded by Sections 22.04.075 through 22.04.079.5, the City shall be divided into eight service areas. For the purpose of administering this program authorized by Ordinance No. 58597, District 1 shall include wards 11, 12, and 13; District 2 shall be wards 14, 16, 23 and 25; District 3 shall be wards 9, 10 and 15; District 4 shall be wards 6, 7, 8 and 17; District 5 shall be wards 24, 26 and 28; District 6 shall be wards 2, 3, 5 and 21; District 7 shall be wards 4, 18 and 19; District 8 shall be wards 1, 20, 22 and 27. All contracts let under Sections 22.04.075 through 22.04.079.5 shall be made with licensed, bonded, and certified plumbing contractors utilizing properly marked service vehicles and paying the prevailing hourly wage rates as determined by the Department of Labor and Industrial Relations of Missouri. It is further stated that it is the specific intention of this Board of Aldermen that, other things remaining equal, the annual contracts provided for above shall be awarded to eight (8) different contractors on the basis of competitive bids to insure that service will be provided in the shortest possible time. If the contractor for a district is unable to provide service for any reason, the Water Commissioner shall utilize the employees and equipment assigned to the Water Division to make the necessary repairs. Or, if they are not available to provide the service, the Water Commissioner may call upon the contractor of an adjacent district to provide said necessary service under the terms of his contract. (1994 C., § 23.04.079.2; Ord. No. 59363, § 8, 1985.)

23.04.079.3 Surcharge for leak repair—Contracting—Minority participation.

In order to insure that there is adequate minority participation in the awarding of repair contracts, there shall be established by the Board of Public Service and the Water Division, a twenty-five percent (25%) minority participation goal. The Board of Public Service and the Water Division shall be required to work with the Civil Rights Enforcement Agency (CREA) and Missouri-Kansas Contractor Association (MoKan) to insure the implementation of this goal. (1994 C., § 23.04.079.3; Ord. No. 59363, § 9, 1985.)

23.04.079.4 Surcharge for leak repair—Leak determination.

The Water Commissioner shall have the responsibility of administering all contracts awarded under the provisions of Sections 22.04.075 through 22.04.079.5, and shall be responsible for determining: if leaking water service line exists; if that leaking water service line is eligible for repair funded by Sections 22.04.075 through 22.04.079.5; in which service area the condition exists; which contractor shall be assigned to repair the condition; and otherwise seeing that the necessary services are provided. (1994 C., § 23.04.079.4; Ord. No. 59363, § 10, 1985.)

23.04.079.5 Licenses and permits expense.

All licenses, permits, certificates, inspections, etc., required to insure compliance with the Revised Code of the City of St. Louis in connection with the repairs funded by Sections 22.04.075 through 22.04.079.4, shall be secured at the contractor's expense. (1994 C., § 23.04.079.5; Ord. No. 59363, § 11, 1985.)

23.04.080 Taps—Furnished by Commissioner—Who may tap pipes—Size.

No tap shall be used except such as is furnished by the Water Commissioner, and no person except the tapper employed by the Water Commissioner shall, under any circumstances, tap the distribution pipes or insert taps therein. No tap shall be inserted in a pipe of greater internal diameter than twenty inches, except by special permission of the Water Commissioner indorsed on the permit. (1948 C., Ch. 55, § 41; 1960 C., § 547.070; 1994 C., § 23.04.080.)

23.04.090 Taps—General regulations.

Taps shall be inserted at least six feet within the lines of the building to be supplied therefrom. No more than one building shall be supplied from one tap except by special permission of the Water Commissioner. When an increase in supply is wanted, the tap in use must be drawn and the main plugged at the expense of the party desiring the increased supply before the new tap is inserted in the water main. When service pipes are abandoned, of which fact the Water Commissioner shall be judge, the taps to which the abandoned pipes are connected shall be drawn and the main pipe plugged. Taps inserted for building purposes will be drawn by the Water Commissioner when the building is completed, unless it be intended to extend the pipe for the supply of the premises, in which case application must be made in the usual manner. (1948 C., Ch. 55, § 43; 1960 C., § 547.100; 1994 C., § 23.04.090.)

23.04.100 Taps—Price.

Whenever the price of taps has been determined by the Water Commissioner, he shall notify the Comptroller thereof. (1948 C., Ch. 55, § 44; 1960 C., § 547.110; 1994 C., § 23.04.100.)

23.04.110 Service pipes—Laying.

All service pipes placed in connection with the waterworks from the main to the inside of the building shall be laid four feet below the surface of the ground and sufficiently waving to allow an extra length of one and one-half feet and in such manner as to prevent rupture by settlement. (1948 C., Ch. 55, § 45; 1960 C., § 547.120; 1994 C., § 23.04.110.)

23.04.120 Service pipes—Specifications.

The pipe shall be made of lead or copper except in cases where the Water Commissioner may grant otherwise. All diameters are inside measurements.

The lead pipe shall be of a class known as "double extra strong," and shall meet the following requirements: One-inch double extra strong, weight six pounds per foot, working pressure one hundred twelve pounds per square inch; one and one-half-inch double extra strong, weight eleven pounds and four ounces per foot, working pressure one hundred three pounds per square inch; two-inch double extra strong, weight nineteen pounds and eight ounces per foot, working pressure one hundred two pounds per square inch.

The copper pipe shall meet the following requirements and all joints shall be made with compression type fittings:

Size	**1″**	**1½″**	**2″**
Outside diameter	1.125″	1.625″	2.125″
Wall thickness	0.065″	0.072″	0.083″
Weight per foot	0.839 lbs.	1.36 lbs.	2.060 lbs.
Working pressure (lbs. per square inch)	513 lbs.	395 lbs.	354 lbs.

(1948 C., Ch. 55, § 46; 1960 C., § 547.130; 1994 C., § 23.04.120.)

23.04.130 Service pipes—Laying in sewer trench.

No service pipe shall be permitted to be laid in a sewer trench except by special permission of the Water Commissioner indorsed on the permit. No pipe of less diameter than one inch shall be permitted to be placed underground in connection with the waterworks. (1948 C., Ch. 55, § 47; 1960 C., § 547.140; 1994 C., § 23.04.130.)

23.04.140 Temporary service pipes.

Temporary service pipes and pipes laid to supply premises where there is no water main in front of the premises shall be metered and the meter shall be located as close to the water main as is practicable to install. When a service pipe is laid along the street, before it enters the premises to be supplied, it shall be laid in the street and at such distance from the curb as shall be designated by the Water Commissioner. Temporary pipes shall be removed and connections made to the water main as soon as the main is laid in front of the premises. (1948 C., Ch. 55, § 48; 1960 C. 547.150; 1994 C., § 23.04.140.)

23.04.150 Stopcocks.

There shall be a stopcock placed on every attachment to the waterworks. In streets it shall be placed under the sidewalk one foot inside of the curb line, and in alleys it shall be placed one foot inside of the alley line. All stopcocks, without exception, shall be round way inverted key Minneapolis pattern with suitable "T" heads. They shall be placed immediately in front of the premises to be supplied, and shall be enclosed in an iron stop box coming up even with the surface of the pavement. When a service pipe is laid in a street or alley a greater distance than fifty feet before it enters the premises to be supplied, there shall be two stopcocks placed upon such pipe, one as near the water main as the Water Commissioner shall require and one in the sidewalk or alley immediately in front of, or at the rear of, the premises. In cases where several buildings are supplied from one tap, there shall be a stopcock and box located near the water main, and also a stopcock and box controlling the water supply to each house independently. (1948 C., Ch. 55, § 49; 1960 C., § 547.160; 1994 C., § 23.04.150.)

23.04.160 Service during building construction.

When an attachment is made to supply water for a building, the service pipe shall be carried to the inside of the foundation during the construction of such building. Water used during the erection of such building must not be taken from the service pipe between the main end and the foundation wall of the building. Regular stopcock and box shall be placed on this service pipe just inside the curb line. (1948 C., Ch. 55, § 50; 1960 C., § 547.170; 1994 C., § 23.04.160.)

23.04.170 Stop and waste cock.

There shall be a stop and waste cock attached to every supply pipe just inside the cellar wall where it enters the building and so arranged and maintained as to admit the water being shut off and the pipes in the building drained. (1948 C., Ch. 55, § 51; 1960 C., § 547.180; 1994 C., § 23.04.170.)

23.04.180 Stop boxes.

All stop boxes used on service pipes connected with the waterworks shall be Minneapolis pattern service boxes made of iron and so constructed as to be adjustable in length. No other pattern or stop box shall be used unless approved by the Board of Public Service. For one-inch curb stops the upper section of the stop box shall be one and one-half-inch inside diameter. For one and one-half and two-inch curb stops the upper section of the stop box shall be two inches inside diameter. (1948 C., Ch. 55, § 52; 1960 C., § 547.190; 1994 C., § 23.04.180.)

23.04.185 Stop boxes over shut off valves—Accessibility.

Notwithstanding the provision of any other ordinance, the Water Division with funds from the Water Division shall, by contract or otherwise, expose, make street level, and make accessible stop boxes over shut off valves whenever the City of St. Louis, by contact or otherwise, is responsible for covering said stop boxes during street repair or resurfacing. (1994 C., § 23.04.185; Ord. No. 62836, § 1, 1993.)

23.04.190 Plumber to shut off water in new building after testing.

When the plumbing work, in connection with any new attachment, or in any new building, has been completed and tested, it shall be the duty of the plumber to shut off the water. (1948 C., Ch. 55, § 53; 1960 C., § 547.200; 1994 C., § 23.04.190.)

23.04.200 Shutoff fee.

When a shutoff for the purpose of repairs cannot be made in the usual manner and it is desired to have the water turned off from the main pipes, the plumber desiring such shutoff will be required to pay the Water Commissioner the sum of two dollars to cover the cost of the shutoff. (1948 C., Ch. 55, § 54; 1960 C., § 547.210; 1994 C., § 23.04.200.)

23.04.210 Regulations for large connections, six-inch and larger.

A. All large connections, for domestic use, fire protection use, or combined fire protection and domestic use, shall have, in addition to the stop valve in the street, another valve, for use of the occupant, where the pipe first enters the building. Parties desiring attachments for supplying water to large connections shall file an application with the Water Commissioner, stating such information pertaining to the subject as he may require.

B. For these attachments, only the installation of taps, tapping valves and water meters will be made by the Water Commissioner. Such attachments will be made by the Water Commissioner at the cost of the parties desiring the attachment when, in the opinion of the Water Commissioner, the attachment or the use thereof will not interfere with or endanger the water

supply to buildings in the immediate vicinity. The Water Commissioner may require the installation of air chambers of sufficient capacity to prevent water hammer from being transmitted to the distribution system. The Water Commissioner may also require air gaps or backflow preventers on services that may, in his opinion, pose a hazard to the water system. Connection for furnishing water for fire purposes shall not be used for any other purpose unless a proper type of water meter is placed thereon at the cost of the parties desiring the water.

C. The parties desiring attachments shall do all excavation, backfilling, and pavement replacement required. The Water Commissioner will furnish a sketch of the excavation required for tapping the water main and will proceed with tapping only when excavation conforms to this sketch and is safe. The parties desiring attachments shall install all piping, valve boxes, meter boxes, et cetera required to conform to the Water Division's standard drawings before service is granted. The parties desiring attachments shall install materials conforming to the standards on file in the Water Commissioner's Office and shall provide proof of compliance to the Water Commissioner before service is to be granted. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part); 1994 C., § 23.04.210; Ord. No. 57997, § 1(part), 1980.)

23.04.211 Pipe specifications.

All pipe shall be class 52 ductile-iron pipe, centrifugally cast in metal molds or sand-lined molds, for water or other liquids as specified in American National Standards Institute Specification ANSI A21.51-1976 and the American Water Works Association AWWA C151-76 standards. Nominal pipe sizes shall be 6, 8, and 12 inches in diameter. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part); 1994 C., § 23.04.211; Ord. No. 57997, § 1(part), 1980.)

23.04.212 Fittings.

All pipe fittings shall have a pressure rating of 250 psi and an iron strength of 25,000 psi or a 350 psi pressure rating when made with ductile iron. All pipe fittings shall meet the standard for gray-iron and ductile-iron fittings, three-inch through 48-inch, for water and other liquids as approved by the American National Standards Institute ANSI A21.10-1977 and the American Water Works Association AWWA Cl10-77 standards. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part); 1994 C., § 23.04.212; Ord. No. 57997, § 1(part), 1980.)

23.04.213 Rubber gasket joints.

All rubber gasket joints shall meet the standards for rubber gasket joints for ductile-iron and gray-iron pressure pipe and fittings as approved by the American National Standards Institute ANSI A21.11-79 and the American Water Works Association AWWA C111-79 standards. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part); 1994 C., § 23.04.213; Ord. No. 57997, § 1(part), 1980.)

23.04.214 Polyethylene encasement.

All pipe, fittings, valves, et cetera shall be encased with polyethylene, meeting the polyethylene encasement for gray and ductile cast-iron piping for water and other liquids standards as approved by the American National Standard Institute ANSI A21.5-1972 and the American Water Works Association AWWA C105-72. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part)); 1994 C., § 23.04.214; Ord. No. 57997, § 1(part), 1980.)

23.04.215 Cement mortar lining.

All pipe and fittings shall have a factory applied cement mortar lining, meeting the cement-mortar lining for cast-iron and ductile-iron pipe and fittings for water standard as approved by the American National Standards Institute ANSI A21.4-74 and the American Water Works Association AWWA C104-74. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part)); 1994 C., § 23.04.215; Ord. No. 57997, § 1(part), 1980.)

23.04.216 Pipe installation.

All pipe, fittings, and appurtenances shall be installed according to the installation of gray and ductile cast-iron water mains and appurtenances standard as approved by the American National Standards Institute and the American Water Works Association ANSI/AWWA C600-77. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part)); 1994 C., § 23.04.216; Ord. No. 57997, § 1(part), 1980.)

23.04.217 Meter boxes and valve boxes.

All meter boxes and valve boxes shall be constructed as shown on the drawings furnished by the Water Commissioner. Meter couplings or flanges shall be furnished by the Water Commissioner on all meter installations, up to two (2) inch, at no cost. Connections over two (2) inch shall have flanged connections as called for by ANSI A21.10-77 and AWWA C110-77. No water shall be turned on to any connection until the Water Commissioner has inspected and approved the installation. The Water Commissioner will install all

meters after approval of installation. The Water Commissioner will furnish all valve box and meter box frame and covers at no cost exclusive of those for automatic sprinkler or combined fire meter use. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part)); 1994 C., § 23.04.217; Ord. No. 57997, § 1(part), 1980.)

23.04.218 Permits, excavation, backfilling and pavement replacement.

All permits shall be obtained by the persons desiring any connection before the Water Commissioner will perform any work. The deposit for the Water Division's cost shall be made before the Water Commissioner will schedule work. All excavations, backfilling and pavement replacement shall be made by the persons desiring the connection. (1948 C., Ch. 55, § 55; 1960 C., § 547.220(part)); 1994 C., § 23.04.218; Ord. No. 57997, § 1(part), 1980.)

23.04.220 Fire protection connections.

A. All new and existing installations for private sprinkler type protection shall be provided with a suitable control valve just inside the building or property line. Connections serving automatic sprinkler equipment must be equipped with an approved type of water flow alarm service of any of local and central station alarms, local alarms and watchman with watch service, or approved outdoor local alarms where there is no watchman on the premises. Water through these connections shall be used to extinguish fires only and the use of water for any other purpose is expressly prohibited. No meter shall be required on connections used to supply private fire protection systems with sprinkler equipment only. Where new and existing connections for private fire protection supply standpipe and hose rack systems or private fire hydrants are or have been installed, a detector check valve with bypass meter and vault shall be installed at the expense of the applicant and if it is found that water is being used for purposes other than the extinguishment of fires or testing, the Water Commissioner shall install a fire service meter and vault at the expense of the owner or occupant. Prior to installation the Water Commissioner shall require a deposit for the estimated cost of all fire service meter and vault installations within ten (10) days of notification or the water shall be shut off from the water main and the Insurance Services Office of Missouri and the Fire Marshal notified of this action. A service charge of two hundred eighty-eight dollars ($288.00), subject to the inflation adjustment, shall be assessed against each connection made with the mains of the Water Division for all new and existing private fire protection connections used to supply sprinkler equipment only and against all new and existing private fire protection connections regulated by detector check valves with bypass meters. Should water in excess of that required for the emergency extinguishment of fires be used through any private fire protection system regulated by a detector check valve with bypass meter then such water use shall be assessed a quantity charge, but not the readiness-to-serve charge, at the rates set forth in Section 23.18.070 of this title. Private fire protection connections regulated by fire service meters shall be assessed the regular meter rates as set forth in Section 23.18.070. For any private fire protection connection regulated either by a detector check valve with bypass meter or by a fire meter an adjustment will be made for water used for the emergency extinguishment of fire where such use is claimed and certified to the Water Commissioner by the occupant or owner. In cases where these bills are not paid within thirty (30) days, the Water Commissioner shall cause the connection to be shut off and notify the Insurance Services Office of Missouri and the Fire Marshal of this action.

B. Sprinkler protection shall be considered a piping system with nationally recognized testing laboratory approved sprinkler heads attached. Stand-pipe and hose racks systems shall be considered any arrangements of piping whereby hoses for fighting fires can be attached to the pipes and used either by the occupant or owner or the Fire Department. A fire hydrant shall be considered any water connection with an outlet at least two and one-half (2½) inches inside diameter and provided with the same size threads used by the St. Louis Fire Department. Two-inch or smaller fire protection connections shall be used only when approved by the Fire Marshal and by the Water Commissioner and no water for purposes other than fire extinguishment shall be taken from such connections.

C. Limited service sprinklers attached to domestic service lines shall conform to the following minimum requirements. One (1) sprinkler head per fire area when supplied from a one-inch domestic service. Two (2) sprinkler heads per fire area when supplied from a one-and-one-half (1½) inch domestic service. Four (4) sprinkler heads per fire area when supplied from a two-inch domestic service. A fire area shall be a confined area which may contain hazardous substances. Limited service sprinklers in any one (1) building shall

be limited to a maximum of twenty (20) sprinklers. No sprinkler supply lines shall be attached to the domestic service before the domestic water meter.
(1948 C., Ch. 55, § 56; 1960 C., § 547.230; 1994 C., § 23.04.220; Ord. No. 71683, §§ 2, 11, 6-26-2023; Ord. No. 68694, § 11, 6-25-2010; Ord. No. 67919, § 12, 2008; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56553, § 1, 1973; Ord. No. 55357, § 1, 1969; Ord. No. 49381, § 4, 1959.)

City Counselor Ops.: 8526, 9813

23.04.225 Lawn sprinklers.

Lawn sprinklers when connected to a potable water system shall be installed in accordance with the building and plumbing codes of the City. Backflow prevention devices shall be installed on lawn sprinkler installations. Lawn sprinkler systems shall be installed and maintained by licensed plumbers. (1994 C., § 23.04.225; Ord. No. 61713, § 1, 1989.)

23.04.230 Weekly report by plumbers.

It shall be the duty of all persons carrying on the plumbing business in the City to make weekly returns to the Water Commissioner of all alterations of, or additions to, plumbing work made by them during the previous week. The returns shall state the nature of the additions or alterations and such other particulars necessary to a full understanding of the subject as the Water Commissioner may require. (1948 C., Ch. 55, § 57; 1960 C., § 547.240; 1994 C., § 23.04.230.)

23.04.240 Nonissuance of tap permits.

When a fine shall have been imposed upon any person carrying on the plumbing business, or his bond or certificate shall have been forfeited, suspended or cancelled, the Water Commissioner shall refuse to issue any tap permit to such person until such fine has been paid, or until such bond or certificate has been duly renewed by the proper officer or department. (1948 C., Ch. 55, § 58; 1960 C., § 547.250; 1994 C., § 23.04.240.)

Chapter 23.06

WATER BILLS

Sections:

23.06.010 Definitions.
23.06.020 Generally.
23.06.030 Reinspection for correction.
23.06.040 Advance payment.
23.06.050 Districts.
23.06.060 Due dates.
23.06.070 Deposits in advance.
23.06.071 Interest to be paid.
23.06.072 Refund on termination.
23.06.073 Establishment of credit.
23.06.074 Records.
23.06.075 Receipt of payment.
23.06.076 Deposit for continued service.
23.06.080 Rebate—Vacating premises.
23.06.090 Rebate—When not allowed.
23.06.100 Rebate—Premises destroyed by fire.
23.06.110 Flat rate assessment—Second bill.
23.06.120 Repair charges.
23.06.130 Reserved.
23.06.140 Main pipe cut off.
23.06.150 Delinquent consumer at new location.
23.06.160 Turning on shut off water.
23.06.170 Liens.

23.06.010 Definitions.

For the purpose of this chapter the following words are defined as follows:

A. "Apartments, tenements and flats" means houses subdivided into suites or rooms and rented separately to families or individuals;

B. "Rooming houses" means houses or premises licensed or advertised as such, where persons are furnished with lodging for a compensation, paid or to be paid therefor, and having two or more bedrooms for the use of guests;

C. "Boardinghouses" means houses or premises licensed or advertised as such, where meals or food are furnished for a compensation paid or to be paid therefor. (1948 C., Ch. 55, § 1; 1960 C., § 548.010; 1994 C., § 23.06.010.)

23.06.020 Generally.

Bills for the use of water from the City waterworks shall be made out by the Water Commissioner from the records of the latest inspections of premises. The amounts charged shall conform to the rates established by this title. (1948 C., Ch. 55, § 6(part); 1960 C., § 548.020; 1994 C., § 23.06.020; Ord. No. 63346, § 2(part), 1994; Ord. No. 48646, § 1(part), 1958.)

23.06.030 Reinspection for correction.

A. Premises will be reinspected for the correction of bills on request of the occupant, owner or agent;

provided, that the bill is returned and the request is made not later than five days after the date the bill becomes due. Failure to receive the bill shall not entitle the consumer to any extension of time for reinspection.

B. After bills are paid, the Water Commissioner may, at his discretion, make reinspection for correction of assessments on account of change in premises. When the reinspection shows that an overcharge has been made on the original bill, the Water Commissioner shall send a revised bill to the customer showing the correct amount. The Water Commissioner shall give a credit on future water bills for the period of time that the present customer has had the water service in their name. The Water Commissioner may not correct any bill that is more than one year old. (1948 C., Ch. 55, § 6(part); 1960 C., § 548.030; 1994 C., § 23.06.030; Ord. No. 63346, § 2(part), 1994; Ord. No. 48646, § 1(part), 1958.)

23.06.040 Advance payment.

Bills for the use of water from the City waterworks shall be made out by the Water Commissioner. The amount assessed shall in all cases be paid in advance and shall be calculated from the date on which the use of water begins to the end of the period fixed for billing purposes in the particular subdistrict; provided that in no case shall the charge be for less than one dollar regardless of the calculated amount.

Bills for the use of water shall in general be made up for the period of three months, except that bills for shorter periods may be rendered in those cases where the Water Commissioner deems it essential for the protection of the interest of the City, or where the amounts of advanced payments required for three months become so large that more frequent collections are advisable, or where the use of water for a specific purpose is restricted to a definite period of time less than three months. (1948 C., Ch. 55, § 7; 1960 C., § 548.040; 1994 C., § 23.06.040; Ord. No. 55357, § 1(part), 1969; Ord. No. 48646, § 2, 1958.)

23.06.050 Districts.

It shall be the duty of the Water Commissioner to divide the City into as many districts and subdistricts as he may deem necessary. The boundaries of the districts and subdistricts may be changed at the discretion of the Water Commissioner. (1948 C., Ch. 55, § 8; 1960 C. 548.050; 1994 C., § 23.06.050.)

23.06.060 Due dates.

All bills for the use of water on premises within any subdistrict shall be made payable on any weekday of the calendar month designated by the Water Commissioner, except where applications are made for the use of water on premises newly built or reconstructed, or where applications for the use of water are made because of a change in owners, tenants or occupants, or because of the occupancy of premises previously vacant, or for any use of water necessitating an application for such use on any other date than the one fixed for payment of bills in that subdistrict.

All short-term bills shall be issued so as to terminate on the same date as the full-term bills. (1948 C., Ch. 55, § 9; 1960 C., § 548.060; 1994 C., § 23.06.060.)

23.06.070 Deposits in advance.

All customers supplied with water at meter rates shall be required to deposit in advance with the Water Commissioner an amount sufficient to pay, at the rates hereinafter established, the cost of the quantity of water estimated to be used in each case during the period not to exceed three months. Should the Water Commissioner find at any time that the quantity of water so estimated to be used is likely to be exceeded by a consumer, he shall issue a second bill against the consumer requiring an additional deposit, the amount of which shall be calculated on the basis of the quantity actually used since the previous deposit was made. In no event shall the total required deposit be in excess of twenty-five thousand dollars ($25,000.00). If the consumer fails to make the deposit called for by the second bill within five days after the date of the second bill, the Water Commissioner may shut the water off to the premises without further notice, and it shall not be turned on again until the required deposit is made. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(1); 1994 C., § 23.06.070; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.071 Interest to be paid.

Interest equal to that authorized for the maximum bank passbook interest rate established by the law in effect on January 1 of each year, compounded annually, shall be payable on all deposits. Accrual of interest will start with the effective date of the ordinance codified in this section for customers with current deposit on account. Deposits must be held at least one year from deposit date to accrue interest and interest will only be paid on deposits held for full-year periods. Interest

shall be either credited to the service account of the customer on an annual basis or paid upon the return of the deposit after the date a reasonable effort has been made to return such deposit to the customers. The Water Commissioner shall keep in its records evidence of its efforts to return such deposits. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(2); 1994 C., § 23.06.071; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.072 Refund on termination.

Upon termination of service, the deposit, with accrued interest, if any, shall be credited to the final bill and the Water Commissioner shall certify to the Comptroller the balance, if any, remaining in the account. The Comptroller shall notify the City Treasurer to refund this amount promptly to the customer. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(3); 1994 C., § 23.06.072; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.073 Establishment of credit.

The credit of a customer shall be established and the deposit shall be refunded promptly by the Water Commissioner upon satisfactory payment by the customer of all proper charges for service for a period not to exceed eight successive billing periods beginning with the customer's first full billing period after the effective date of the ordinance codified in this section. Interest shall be paid in accordance with Section 23.06.071. For purposes of Sections 23.06.070 through 23.06.076 payment is satisfactory if payment is received by the Collector of Revenue prior to the date upon which the bill becomes delinquent. The Water Division will withhold refund of the deposit funds for non-payment by the customer or unauthorized interference by the customer. The Water Commissioner shall certify to the Comptroller that a customer has established credit under Sections 23.06.070 through 23.06.076 and the Comptroller shall notify the City Treasurer to refund this amount. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(4); 1994 C., § 23.06.073; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.074 Records.

The Water Division shall maintain a record of all deposits received from customers, showing the name and address of each customer, the location of the premises for which the deposit was received, the date and amount of deposit, and the date and amount of interest paid or credited to the account. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(5); 1994 C., § 23.06.074; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.075 Receipt of payment.

A. Each customer posting an advance deposit shall receive in writing at the time of deposit or with the first bill, a receipt as evidence thereof, unless the Water Division shows the existence or nonexistence of a deposit on the customer's bill, in which event the receipt shall not be required unless requested by the customer. The receipt shall contain the following minimum information:

1. Name of customer;

2. Premises being served;

3. Address to which deposit refund and interest will be sent;

4. Date of payment;

5. Amount of payment;

6. Identifiable name, signature and title of the Water Division employee receiving payment;

7. Statement of the terms and conditions governing the payment, retention, and return of deposits.

B. The Water Division shall provide a means whereby a person entitled to a return of a deposit is not deprived of the deposit refund even though he may be unable to produce the original receipt for the deposit, provided he can produce adequate identification to insure that he is the customer entitled to refund of the deposit. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(6); 1994 C., § 23.06.075; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.076 Deposit for continued service.

The Water Commissioner may also require a customer to post deposit as a condition of continued service due to any of the following:

A. The service of the customer has been discontinued due to non-payment of a delinquent account;

B. In an unauthorized manner the customer interfered with or diverted the service of the Water Division situated on or about or delivered to the customer's premises;

C. The customer has failed to pay a bill before the delinquency date for two billing periods out of twelve or less consecutive billing periods; or

D. The Water Division can show a likelihood that the customer does not intend to pay for continued

service. (1948 C., Ch. 55, § 10; 1960 C., § 548.070(7); 1994 C., § 23.06.076; Ord. No. 58045, § 3(part), 1980; Ord. No. 55357, § 1(part), 1969.)

23.06.080 Rebate—Vacating premises.

Any consumer who vacates the premises for which he paid for the use of water before the expiration of the period covered, may notify the Water Commissioner in writing, who shall cause the water to be shut off at such premises. The Water Commissioner shall certify to the Comptroller the amount due the consumer on account of the unexpired period. The Comptroller shall notify the Treasurer to refund this amount to the consumer. (1948 C., Ch. 55, § 11(part); 1960 C., § 548.080; 1994 C., § 23.06.080; Ord. No. 48646, § 3(part), 1958.)

23.06.090 Rebate—When not allowed.

No rebates will be allowed on sprinkling charge, washing machines, livestock or movable articles. Any temporary failure or interruption of supply or decrease of pressure in the service shall not entitle the consumer to a rebate. (1948 C., Ch. 55, § 11(part); 1960 C., § 548.090; 1994 C., § 23.06.090; Ord. No. 48646, § 3(part), 1958.)

23.06.100 Rebate—Premises destroyed by fire.

Any consumer deprived of the use of water by the destruction by fire of the premises for which he has paid for the use of water, shall be entitled to a rebate as provided in Section 23.06.080. (1948 C., Ch. 55, § 12; 1960 C., § 548.100; 1994 C., § 23.06.100; Ord. No. 48646, § 4, 1958.)

23.06.110 Flat rate assessment—Second bill.

All premises for which the use of water is assessed at flat rates must be assessed by the Water Commissioner for the use of water for all purposes for which it is exposed to be used.

After the bill is paid for the use of water upon any premises, if the Water Commissioner shall find that water supplied to the premises is used or exposed to be used for purposes not contemplated under the rate paid, then the Water Commissioner is authorized to issue a second bill assessing the proper rate as established by ordinance for the purpose not covered by the first bill. If the second bill is not paid within five days, then the Water Commissioner shall place a meter on the connection supplying the premises, and the water used thereafter on the premises shall be paid for at the meter rates established by ordinance. (1948 C., Ch. 55, § 17; 1960 C., § 548.110; 1994 C., § 23.06.110; Ord. No. 48646, § 8, 1958.)

23.06.120 Repair charges.

Where the stopcock on the service pipe or the box covering it is out of order, the Water Commissioner shall excavate and shut off at the curb or at the main, in his discretion, and charge the cost of such labor against the owner, agent, occupant or lessee of such premises. These charges shall be added to the amount of the unpaid bill to be collected by the collector of the revenue before water is again furnished such owner, agent, occupant or lessee of the premises.

The Water Commissioner shall also notify the owner, agent or lessee to repair the stopcock or box and in case the owner, agent or lessee neglects or refuses to repair the stopcock or box at once, the Water Commissioner shall proceed as authorized in Section 23.04.070. (1948 C., Ch. 55, § 18(part); 1960 C., § 548.130; 1994 C., § 23.06.120.)

23.06.130 Reserved.

Editor's Note:

Ord. No. 71683, § 2, approved June 26, 2023, amended the Code by repealing former § 23.06.130 in its entirety. Former 23.06.130 pertained to shutoff for delinquency, and derived from the 1948 Code, Ch. 55, § 18; the 1960 Code, § 548.120; the 1994 Code, § 23.06.130; Ord. No. 55357 of 1969; Ord. No. 57997 of 1980; Ord. No. 66076 of 2003; Ord. No. 67919 of 2008; Ord. No. 68040, approved July 7, 2008; and Ord. No. 68694, approved June 25, 2010.

23.06.140 Main pipe cut off.

Whenever the Water Commissioner causes the water to be shut off from any hydrant or premises and it is turned on again without his permission, the Water Commissioner shall immediately cause the connection with the main pipe to be cut off. Water shall not again be supplied to these premises until the cost of cutting off the connection from the main and reconnecting it is paid to the Water Division, except in those cases where the premises have been vacated by the delinquent consumer and a new owner, tenant or lessee applies in good faith for permission to use the water. (1948 C., Ch. 55, § 19; 1960 C., § 548.140; 1994 C., § 23.06.140; Ord. No. 48646, § 9, 1958.)

City Counselor Ops.: 10247

23.06.150 Delinquent consumer at new location.

Should a delinquent consumer or any person in his name make application for the use of water at any other

premises in the City, he shall be required to pay the amount of the delinquent bill, including the cost of cutting off and repairing the connection to the premises formerly occupied or owned by the party before permission is granted for use of water at his new location. (1948 C., Ch. 55, § 20(part); 1960 C., § 548.150; 1994 C., § 23.06.150; Ord. No. 48646, § 10(part), 1958.)

City Counselor Ops.: 10247

23.06.160 Turning on shut off water.

Any person turning water on any hydrant or pipe that has been shut off by the Water Commissioner, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 55, § 20(part); 1960 C., § 548.160; 1994 C., § 23.06.160; Ord. No. 48646, § 10(part), 1958.)

23.06.170 Liens.

When any water bills or charges pursuant to ordinance remain unpaid, in whole or in part after the date due for payment, the Collector of Revenue is authorized to file a lien upon the premises or real estate upon or for which the water was used or service rendered. The Collector of Revenue shall notify the property owner via certified mail that a lien will be filed on the property no less than ten (10) days prior to the filing of the lien. (1960 C., § 548.170; 1994 C., § 23.06.170; Ord. No. 68040, § 4, 7-7-2008; Ord. No. 55357, § 1(part), 1969.)

Chapter 23.08

ACCESS TO METERS

Sections:

23.08.010 Right of entry.
23.08.020 Accessibility.

23.08.010 Right of entry.

The Water Commissioner and his duly authorized employees shall have free access at all reasonable hours to any premises where it may be necessary to ascertain the reading of meters, the location or condition of a water pipe, or other fixtures attached to the waterworks, or to shut off or let on water from any hydrant, pipe or other attachment, or for any other purpose that may be deemed essential for the operation of the waterworks, prevention of waste or protection of the revenue. (1948 C., Ch. 55, § 21; 1960 C., § 549.020; 1994 C., § 23.08.010.)

City Counselor Ops.: 9593

23.08.020 Accessibility.

It shall be the duty of all owners, agents, occupants or lessees to see that meters on service connections wherever located shall be readily accessible at all times to the Water Commissioner or his duly authorized agents. Failure to remove any obstruction which prevents access to the meter within three days after being notified by the Water Commissioner shall be sufficient warrant for him to shut off the water pipe supplying the premises, and it shall not be again turned on until all obstructions are removed. (1948 C., Ch. 55, § 27; 1960 C., § 549.010; 1994 C., § 23.08.020.)

Chapter 23.10

ABUSE OF WATER PRIVILEGES

Sections:

23.10.010 Abuse requires meter.
23.10.020 Use of meter to determine excessive water use.
23.10.030 Water shut off.
23.10.040 Misuse of water—Abusing waterworks.

23.10.010 Abuse requires meter.

Any person to whom a bill is issued for the use of water at a flat rate who shall use or allow to be used water from the premises designated in his bill for any other purpose than that specified therein, or shall allow any person not having paid for the use of water from such premises to use water from such premises, or who shall allow any hydrant to remain exposed to public use, or shall suffer or permit any unnecessary waste of water therefrom, or shall negligently suffer or permit the water to waste because of the plumbing fixtures being out of repair, or otherwise, shall be deprived of the privilege of having a flat rate assessed against the premises. The Water Commissioner shall place a meter on that connection and the water supplied to those premises thereafter shall be paid for at the meter rates prescribed by ordinance. (1948 C., Ch. 55, § 13(part); 1960 C., § 550.010; 1994 C., § 23.10.010; Ord. No. 48646, § 5(part), 1958.)

23.10.020 Use of meter to determine excessive water use.

The Water Commissioner is authorized to place a meter on any connection to the City mains, at his own discretion, for the purpose of ascertaining the quantity of water flowing through such connection, and should

he find that there is an excessive use of water on such premises, payment shall be made thereafter at meter rates. (1948 C., Ch. 55, § 13(part); 1960 C., § 550.020; 1994 C., § 23.10.020; Ord. No. 48646, § 5(part), 1958.)

23.10.030 Water shut off.

Any consumer of water through a metered connection who shall continue to allow the unnecessary waste of water through defective plumbing, carelessness or otherwise, after the Water Commissioner has notified him of such defect, shall have the water shut off from his premises, and it shall not be again turned on until such time as he may be able to show evidence satisfactory to the Water Commissioner that the unnecessary waste of water will be discontinued. Such consumer shall not be entitled to any claim for damages due to his water supply being shut off. (1948 C., Ch. 55, § 14; 1960 C., § 550.030; 1994 C., § 23.10.030.)

McQuillin:

34.23 Rules as to shutting off supply

34.188, 34.195 Cutting off water supply

34.90 Grounds for refusal to supply

23.10.040 Misuse of water—Abusing waterworks.

Any person violates this chapter who shall himself, or by any of his family, agents, tenants, or servants, take water from the waterworks without a permit for the use of water, or who shall without lawful authority open any fireplug, stopcock, valve or other fixture appertaining to such works, or who shall injure, deface or impair any part, or appurtenance of the waterworks, or shall throw or cast anything into the reservoirs of the works. (1948 C., Ch. 55, § 15; 1960 C., § 550.040; 1994 C., § 23.10.040; Ord. No. 63245, § 5, 1994; Ord. No. 48646, § 6, 1958.)

Chapter 23.11

TAMPERING WITH FIRE HYDRANTS

Sections:

23.11.010 Permit required.
23.11.020 Prohibited acts.
23.11.030 Responsibility of parent or guardian.
23.11.040 Liability of parent or guardian.

23.11.010 Permit required.

No person shall tamper with any fire hydrant without obtaining a permit to do so from the City of St. Louis Water Division. As used herein "fire hydrant" includes fire hydrants, fireplugs or other devices for connecting a fire hose to a water main. The word "tamper" shall include, but not be limited to, the removal of the cap or any other part of said device; the insertion of any object or material into said device; the application of any wrench, tool, implement or other object or material to said device; the attachment of a hose or any other instrument to said device; or the use of said device in any fashion so as to permit water to flow therefrom. This section shall not apply to the owner of said device, the agents, permittees, and employees of said owner, representatives of the City of St. Louis, or any firefighting personnel engaged in any activity related to firefighting or the maintenance and operation of firefighting equipment. (1994 C., § 23.11.010; Ord. No. 63245, § 1, 1994.)

23.11.020 Prohibited acts.

No person shall in a public street or other public place play, stand or lay in water discharged from a fire hydrant unless said discharge was established by the City for said activities. (1994 C., § 23.11.020; Ord. No. 63245, § 2, 1994.)

23.11.030 Responsibility of parent or guardian.

No parent or guardian, excluding foster parents, of any unemancipated minor under eighteen years of age, in his or her care and custody, shall allow such minor to engage in conduct prohibited by Section 23.11.010 or Section 23.11.020 of this chapter. (1994 C., § 23.11.030; Ord. No. 63245, § 3, 1994.)

23.11.040 Liability of parent or guardian.

The parent or guardian, excluding foster parents, of any unemancipated minor, under eighteen years of age, in their care and custody, shall be liable for any damages caused by said unemancipated minor, as the result of a violation of Section 23.11.010 or Section 23.11.020 of this chapter, up to an amount of one thousand dollars ($1,000.00). Such liability shall not be a bar to prosecution of any other proceeding against the unemancipated minor for a violation of Section 23.11.010 or Section 23.11.020 of this chapter. If necessary, to the extent permitted by law, the unemancipated minor shall be detained by the police until the parent or guardian can be located and processed. (1994 C., § 23.11.040; Ord. No. 63245, § 4, 1994.)

Chapter 23.12

WATER CONNECTION REPAIRS

Sections:

23.12.010 Repair required.
23.12.020 Notice to repair.
23.12.030 Reconnection.

23.12.010 Repair required.

Stop boxes over the shut off valves on all service pipes must be kept in repair, exposed and accessible at all times by the agent, owner or occupant of the premises supplied by such service pipes. (1948 C., Ch. 55, § 24(part); 1960 C., § 551.010; 1994 C., § 23.12.010; Ord. No. 48646, § 11(part), 1958.)

23.12.020 Notice to repair.

Whenever a stop box or shut off valve is found by the Water Commissioner to be broken, in need of repairs, covered up or in any way inaccessible, he shall notify the agent, owner or occupant to repair, locate or uncover the stop box or shut off valve within five days. Failure by the agent, owner or occupant to comply with such notice shall be sufficient to warrant for the Water Commissioner to excavate and shut off the water at the curb or at the main, in his discretion. (1948 C., Ch. 55, § 24(part); 1960 C., § 551.020; 1994 C., § 23.12.020; Ord. No. 48646, § 11(part), 1958.)

23.12.030 Reconnection.

Permission for the use of water for premises supplied from such tap shall not be granted, nor shall the water be turned on at the tap until the stop box or shut off valve is repaired and placed in a condition satisfactory to the Water Commissioner and the total expense of excavating, disconnecting and reconnecting the service pipe and of replacing the street pavement is paid. (1948 C., Ch. 55, § 24(part); 1960 C., § 551.030; 1994 C., § 23.12.030; Ord. No. 48646, § 11(part), 1958.)

Chapter 23.14

USE OF NEIGHBOR'S WATER

Sections:

23.14.010 Permission required.
23.14.020 Use without permission.
23.14.030 Use of drinking fountains.
23.14.040 Duties of police.

23.14.010 Permission required.

The owner or occupant of any store, shop, office or residence having no water connection to the main, may apply to the Water Commissioner for permission to use water from any premises in the neighborhood. Permission for the use of water from such premises may be granted providing the owner or occupant of the premises gives written permission to the Water Commission for such use. (1948 C., Ch. 55, § 16(part); 1960 C., § 552.010; 1994 C., § 23.14.010; Ord. No. 48646, § 7(part), 1958.)

23.14.020 Use without permission.

Any person persisting in the use of water from premises not occupied by him and without permission from the Water Commissioner and owner or occupant of such premises shall be deemed guilty of a misdemeanor. (1948 C., Ch. 55, § 16(part); 1960 C., § 552.020; 1994 C., § 23.14.020; Ord. No. 48646, § 7(part), 1958.)

23.14.030 Use of drinking fountains.

Persons habitually using water from public drinking fountains and water troughs for domestic purposes or for watering livestock, without first obtaining permission therefor, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 55, § 16(part); 1960 C., § 552.030; 1994 C., § 23.14.030; Ord. No. 48646, § 7(part), 1958.)

23.14.040 Duties of police.

It is the duty of all policemen to report any and all breaches of this chapter to the Water Commissioner. (1948 C., Ch. 55, § 16(part); 1960 C., § 552.040; 1994 C., § 23.14.040; Ord. No. 48646, § 7(part), 1958.)

Chapter 23.16

FLAT RATES FOR WATER

Sections:

23.16.010 Permitted uses.
23.16.020 Water turn-on service charge.
23.16.025 Definitions and inflation adjustment.
23.16.040 Flat rates.
23.16.060 Persons ineligible for flat rates.
23.16.090 Penalty for violation.

23.16.010 Permitted uses.

Customers using water for domestic or temporary construction purposes may pay a flat charge for the

service as provided in this chapter. (1948 C., Ch. 55, § 22(part); 1960 C., § 553.010; 1994 C., § 23.16.010; Ord. No. 49381, § 1(part), 1959.)

Charter:

Art. I § 1(18) Water rates

McQuillin:

35.37 Rates for water, generally

34.142 et seq. Water rates

23.16.020 Water turn-on service charge.

A service charge equal to $40.00 shall be collected in advance for turning on water to new flat rate and meter accounts, subject to the Inflation Adjustment.
(1960 C., § 553.015; 1994 C., § 23.16.020; Ord. No. 71683, §§ 2, 9, 6-26-2023; Ord. No. 68694, § 10, 6-25-2010; Ord. No. 67919, § 10, 2008; Ord. No. 66076, § 10, 2003; Ord. No. 57089, § 1, 1975.)

23.16.025 Definitions and inflation adjustment.

A. "Implementation date" shall mean the date as of which the rates of this Chapter are effective, which shall be July 1, 2023, or the effective date of this ordinance, whichever is later.

B. "First year" shall mean the time period beginning on the implementation date and ending on December 31, 2023.

C. "Second and third years" shall mean the calendar years beginning on January 1, 2024 and ending December 31, 2025.

D. "Inflation adjustment" shall mean that notwithstanding the rates enacted for the first year and any rates enacted for the second and third years, (a) on January 1 of each calendar year from January 1, 2026 and thereafter each water rate and service charge specified in Sections 5 to 11 of Ord. No. 71683 shall increase automatically by the annual change in CPI-U for the preceding calendar year as published by the U.S. Bureau of Labor Statistics in the event that the CPI-U for the preceding calendar year is a positive number; and (b) in the event the CPI-U for the preceding calendar year is not a positive number, the rate or service charge shall continue without change for another calendar year.
(1994 C., § 23.16.025; Ord. No. 71683, §§ 2, 3, 6-26-2023; Ord. No. 68694, § 3, 6-25-2010; Ord. No. 67919, § 3, 2008; Ord. No. 66076, § 3, 2003; Ord. No. 63136, §§ 3, 4, 1994; Ord. No. 59524, §§ 3, 4, 1985.)

23.16.040 Flat rates.

The following rates and charges are hereby imposed, subject to the Inflation Adjustment:

A. Flat Rate for Domestic Use.

1. For the use of water for domestic family residence, flat or apartment purposes, for periods of three months in advance:

FIRST YEAR	
Room charge, each	$4.51
Water closet, each.	$17.66
Baths, each	$14.82
Shower, separate from bath, each	$14.82
SECOND AND THIRD YEARS	
Room charge, each	$5.41
Water closet, each.	$21.19
Baths, each	$17.78
Shower, separate from bath, each	$17.78

2. Sprinkling charge of $0.30 per front foot shall be assessed each three-month billing period for lawn sprinkling and other outside uses beginning with the implementation date of this ordinance.
Sprinkling charge of $0.36 per front foot shall be assessed each three-month billing period for lawn sprinkling and other outside uses for the Second and Third Years.

B. *Temporary use of flat rate.* In those cases where users are not eligible for flat rates as enumerated in Section 23.16.060, Revised Code, and where existing water service is unmetered as of the effective date of this ordinance, it shall be the duty of the Water Commissioner, as soon as possible, to cause the installation or setting of the required meter. In the interim, bills shall be rendered to these customers on the basis of the appropriate flat rates imposed by this ordinance.

C. Swimming pool charge.

1. A flat water rate shall be applied where a swimming pool, pond or other pool is found on the premises having a capacity of more than one hundred (100) cubic feet and less than two thousand (2,000) cubic feet which are not metered under Section 23.16.060, Revised Code. Said flat rate shall be payable for periods of three (3) months in advance as follows:
Swimming pool, pond or other pool having a capacity of more than 100 but less than 501 cubic feet—$33.34

Swimming pool, pond or other pool having a capacity of 501 but less than 1,001 cubic feet—$46.66

Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501 cubic feet—$60.02

Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000 cubic feet—$73.34

2. After paying the flat rates imposed under the foregoing Section 5(c)1 or Section 5(c)1 of Ordinance Number 68694, or both, for a minimum of one (1) year, the user making said payments shall have the option to pay at meter rates as provided by Chapter 23.18, Revised Code. Such options shall be exercised in writing on forms supplied by the Water Commissioner. The user shall provide for the meter by having a meter box and set up installed on the service in accordance with Section 23.04.210, Revised Code, at the user's own expense.

(1948 C., Ch. 55, § 22; 1960 C., § 553.030; 1994 C., § 23.16.040; Ord. No. 71683, §§ 2, 4, 6-26-2023; Ord. No. 68694, § 5, 6-25-2010; Ord. No. 67919, § 5, 2008; Ord. No. 66076, § 5, 2003; Ord. No. 63136, § 4(a) 1994; Ord. No. 59524, § 4(a), 1985; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56553, § 1, 1973; Ord. No. 55357, § 1, 1969; Ord. No. 49381, § 1, 1959.)

23.16.060 Persons ineligible for flat rates.

The following water users shall not be eligible for flat rates:

A. All commercial, industrial, institutional, governmental, charitable, educational, religious users, including rooming, lodging, boardinghouses, and hotel users;

B. Domestic customers whose premises contain any of the following equipment or facilities:

1. Water-cooled air conditioning or refrigeration equipment;

2. Swimming pool, or other pool or pond, two thousand cubic feet or more in capacity;

3. Aquarium, fountain, or other device using a constant supply of water;

4. Hydraulically operated motor, pump, lift, or other equipment;

5. Any other device judged by the Water Commissioner to use more than a normal amount of water.

(1948 C., Ch. 55, § 22(part); 1960 C., § 553.050; 1994 C., § 23.16.060; Ord. No. 55523, § 1, 1970; Ord. No. 49381, § 1(part), 1959.)

23.16.090 Penalty for violation.

Any owner, agent, or occupant of unmetered premises on which a pool described in Section 23.16.080 is found without the swimming pool charge having been paid within fifteen days after written notice shall be guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not less than twenty-five dollars nor more than five hundred dollars for the first offense, and not less than fifty dollars nor more than five hundred dollars for subsequent offenses. (1960 C., § 553.080; 1994 C., § 23.16.090; Ord. No. 55523, § 3, 1970.)

Chapter 23.18

METER RATES FOR WATER

City Counselor Ops.: 7684, 8526, 9813

Sections:

23.18.010 Request for meter.
23.18.015 Definitions and inflation adjustment.
23.18.020 Meters placed at order of Water Commissioner.
23.18.030 Required users.
23.18.040 Separate meters.
23.18.050 Assessed on total at one location.
23.18.060 Street railways and railroads.
23.18.070 Metered rates.

23.18.010 Request for meter.

Water furnished to any premises at flat rates, as provided for in Chapter 23.16, may be paid for at meter rates at the request of the person requiring the use of water and applying for a meter. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.010; 1994 C., § 23.18.010; Ord. No. 49381, § 2(part), 1959.)

23.18.015 Definitions and inflation adjustment.

A. "Implementation date" shall mean the date as of which the rates of this Chapter are effective, which shall be July 1, 2023, or the effective date of this ordinance, whichever is later.

B. "First year" shall mean the time period beginning on the implementation date and ending on December 31, 2023.

C. "Second and third years" shall mean the calendar years beginning on January 1, 2024 and ending December 31, 2025.

D. "Inflation adjustment" shall mean that notwithstanding the rates enacted for the first year and any rates enacted for the second and third years, (a) on

January 1 of each calendar year from January 1, 2026 and thereafter each water rate and service charge specified in Sections 5 to 11 of Ord. No. 71683 shall increase automatically by the annual change in CPI-U for the preceding calendar year as published by the U.S. Bureau of Labor Statistics in the event that the CPI-U for the preceding calendar year is a positive number; and (b) in the event the CPI-U for the preceding calendar year is not a positive number, the rate or service charge shall continue without change for another calendar year.
(Ord. No. 71683, § 3, 6-26-2023.)

23.18.020 Meters placed at order of Water Commissioner.

The Water Commissioner shall have power to place any premises under meter, and render bills therefor at meter rates, whenever, in his opinion, it is necessary for the interest of the City or for the protection of the revenue. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.020; 1994 C., § 23.18.020; Ord. No. 49381, § 2(part), 1959.)

23.18.030 Required users.

All premises supplied through connections of greater capacity than one tap, three-fourths of an inch in diameter, and all commercial, industrial, governmental, religious, including boarding, rooming, lodging houses and hotels, users shall be placed under meter, and the water used be paid for at metered rates. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.030; 1994 C., § 23.18.030; Ord. No. 49381, § 2(part), 1959.)

23.18.040 Separate meters.

In the event a customer is served by more than one meter, at any one location, the minimum bill shall be the sum of the minimums for the separate meters. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.060; 1994 C., § 23.18.040; Ord. No. 49381, § 2(part), 1959.)

23.18.050 Assessed on total at one location.

All premises supplied with water at meter rates shall have the rate assessed on the total quantity of water used during the billing period at one location, whether it be a single building or group of buildings in one block or adjacent blocks or tracts of ground. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.070; 1994 C., § 23.18.050; Ord. No. 49381, § 2(part), 1959.)

23.18.060 Street railways and railroads.

Street railways and railroads shall have their meter rate independently assessed on the total quantity of water used at each location on their lines of track and for each piece of property owned, leased, or controlled by them and not adjacent to their tracks.

The term "each location" as above used is hereby defined to be a station roundhouse, shop or power plant, with the switching tracks and yards adjacent to each. (1948 C., Ch. 55, § 23(part); 1960 C., § 554.080; 1994 C., § 23.18.060; Ord. No. 49381, § 2(part), 1959.)

23.18.070 Metered rates.

The following rates are hereby imposed, subject to the Inflation Adjustment:

A. Water furnished to all metered connections shall be assessed for use per three-month billing period, or less, at rates equal to the combined sum of a readiness-to- serve charge and a quantity charge.

B. The readiness-to-serve charge shall be determined by the size of the meter and shall be as follows:

FIRST YEAR METER	
5/8"	$28.61
3/4"	$33.34
1"	$42.26
1½"	$61.12
2"	$88.82
3"	$172.21
4"	$305.46
6"	$583.19
8"	$888.64
10"	$1,221.90
SECOND AND THIRD YEARS METER	
5/8"	$34.33
3/4"	$40.01
1"	$50.71
1½"	$73.34
2"	$106.58
3"	$206.65
4"	$366.55
6"	$699.83
8"	$1066.37
10"	$1466.28

C. Should water be furnished through two (2) or more separate meters, the readiness-to-serve charge shall be the combined total of the readiness-to-serve charge for each meter. Should water be furnished through

a single meter containing two (2) or more metering elements, the readiness-to-serve charge shall be that for a single meter the size of the largest metering element.

D. The quantity charge shall be at the following rates:

FIRST YEAR

(i) For first 25,000 cubic feet per billing, per 100 cubic feet, $2.12

(ii) For next 1,975,000 cubic feet per billing, per 100 cubic feet, $1.66

(iii) Over 2,000,000 cubic feet per billing, per 100 cubic feet, $1.25

SECOND AND THIRD YEARS

(i) For first 25,000 cubic feet per billing, per 100 cubic feet, $2.54

(ii) For next 1,975,000 cubic feet per billing, per 100 cubic feet, $1.99

(iii) Over 2,000,000 cubic feet per billing, per 100 cubic feet, $1.50

E. Should water be furnished through two (2) or more meters or through a single meter with two (2) or more metering elements, the quantity charge shall be based on the combined total of all water used as indicated by all registers.

(1948 C., Ch. 55, § 23; 1960 C., § 554.040; 1994 C., § 23.18.070; Ord. No. 71683, §§ 2, 5, 6-26-2023; Ord. No. 68694, § 6, 6-25-2010; Ord. No. 67919, § 6, 2008; Ord. No. 66076, § 6, 2003; Ord. No. 63136, § 4(e), 1994; Ord. No. 59524, §§ 3, 4(e), 1985; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56553, § 1, 1973; Ord. No. 55357, § 1, 1969; Ord. No. 49381, § 2, 1959.)

Editor's Note:

Ordinance 63136 was passed March 29, 1994.

Chapter 23.20

METER RATES FOR PUBLIC OR CHARITABLE INSTITUTIONS OR HOSPITALS

Sections:

23.20.010	**Meters in public institutions.**
23.20.015	**Definitions and inflation adjustment.**
23.20.020	**Special rates in hospitals or charitable institutions.**
23.20.030	**School rates.**
23.20.040	**Zoological parks.**

23.20.010 Meters in public institutions.

The Water Commissioner, in his discretion, shall cause meters to be placed on any or all connections to public institutions, buildings, parks or other public places where water is used from the waterworks to ascertain the average amount of the consumption of water. (1948 C., Ch. 55, § 25; 1960 C., § 555.010; 1994 C., § 23.20.010.)

23.20.015 Definitions and inflation adjustment.

A. "Implementation date" shall mean the date as of which the rates of this Chapter are effective, which shall be July 1, 2023, or the effective date of this ordinance, whichever is later.

B. "First year" shall mean the time period beginning on the implementation date and ending on December 31, 2023.

C. "Second and third years" shall mean the calendar years beginning on January 1, 2024 and ending December 31, 2025.

D. "Inflation adjustment" shall mean that notwithstanding the rates enacted for the first year and any rates enacted for the second and third years, (a) on January 1 of each calendar year from January 1, 2026 and thereafter each water rate and service charge specified in Sections 5 to 11 of Ord. No. 71683 shall increase automatically by the annual change in CPI-U for the preceding calendar year as published by the U.S. Bureau of Labor Statistics in the event that the CPI-U for the preceding calendar year is a positive number; and (b) in the event the CPI-U for the preceding calendar year is not a positive number, the rate or service charge shall continue without change for another calendar year.

(1994 C., § 23.20.015; Ord. No. 71683, §§ 2, 3, 6-26-2023; Ord. No. 63136, § 3, 1994; Ord. No. 59524, § 3, 1985).

23.20.020 Special rates in hospitals or charitable institutions.

The following rates are hereby imposed, subject to the Inflation Adjustment:

A. The quantity charge for the use of water by any hospital or charitable institution in the City which shall make written application to the Water Commissioner, signed by its president, secretary or managing officer, asking for a special charity rate, and stating that free service is furnished to not less than ten (10) percent of its patients, members or inmates, and giving special details of the management as are necessary to show the

philanthropic nature of the institution shall, if approved by the Water Commissioner, be assessed for the water used in the institution at a special rate of one dollar and twelve cents ($1.12) per one hundred (100) cubic feet for the first year, one dollar and thirty-four cents ($1.34) per one hundred (100) cubic feet for the second and third years.

B. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

(1948 C., Ch. 55, § 26; 1960 C., § 555.020; 1994 C., § 23.20.020; Ord. No. 71683, §§ 2, 6, 6-26-2023; Ord. No. 68694, § 7, 6-25-2010; Ord. No. 67919, § 7, 2008; Ord. No. 66076, § 7, 2003; Ord. No. 63136, § 4(f), 1994; Ord. No. 59594, § 4(f), 1985; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56553, § 1, 1973; Ord. No. 55357, § 1, 1969; Ord. No. 50257, § 1, 1961; Ord. No. 49381, § 3, 1959.)

City Counselor Ops.: 8492, 8526, 8549, 9813, 10240

23.20.030 School rates.

The following rates are hereby imposed, subject to the Inflation Adjustment:

A. The quantity charge for the use of water by any public, parochial, inter-parochial schools, public libraries, and art museum of the Art Museum subdistrict of the Metropolitan Zoological Park and Museum District of the City of St. Louis and the County of St. Louis shall be assessed for the water used in the institution at a special rate of one dollar and twenty-five cents ($1.25) per one hundred (100) cubic feet for the first year, one dollar and fifty cents ($1.50) per one hundred (100) cubic feet for the second and third years.

B. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

(1948 C., Ch. 55, § 26; 1960 C., § 555.030; 1994 C., § 23.20.030; Ord. No. 71683, §§ 2, 7, 6-26-2023; Ord. No. 68694, § 8, 6-25-2010; Ord. No. 67919, § 8, 2008; Ord. No. 66076, § 8, 2003; Ord. No. 63136, § 4(g), 1994; Ord. No. 59594, § 4(g), 1985; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56553, § 1, 1973; Ord. No. 55357, § 1, 1969; Ord. No. 49381, § 3, 1959.)

City Counselor Ops.: 8492, 8526, 8549, 9813

23.20.040 Zoological parks.

The following rates are hereby imposed, subject to the inflation adjustment:

A. The quantity charge for the use of water by zoological parks of the Zoological subdistrict of the Metropolitan Zoological Park and Museum District of the City of St. Louis and the County of St. Louis shall be assessed for the water used in the institution at a special rate of one dollar and twelve cents ($1.12) per one hundred (100) cubic feet for the first year, one dollar and thirty-four cents ($1.34) per one hundred (100) cubic feet for the second and third years.

B. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

(1960 C., § 555.035; 1994 C., § 23.20.040; Ord. No. 71683, §§ 2, 8, 6-26-2023; Ord. No. 68694, § 9, 6-25-2010; Ord. No. 67919, § 9, 2008; Ord. No. 66076, § 9, 2003; Ord. No. 63136, § 4(h), 1994; Ord. No. 59594, § 4(h), 1985; Ord. No. 57997, § 1, 1980; Ord. No. 57089, § 1, 1975; Ord. No. 56130, §§ 1, 2, 1972; Ord. No. 56553, § 1, 1973.)

Chapter 23.22

WATER FOR CERTAIN LOT OWNERS

Sections:

23.22.010 Water for certain specified lot owners.

23.22.020 Application.

23.22.010 Water for certain specified lot owners.

The privilege of drawing and receiving water from the eight-inch water main between the corporate limits of the City and the Robert Koch Hospital in St. Louis County, upon the terms and conditions hereinafter stated, is granted to the present or future owners of lot number two and lot number one, excepting the easterly six acres of lot number one, as set out in the plat of the Commissioner in partition Davis vs. Forder, St. Louis land court, October term, 1859, in United States survey number thirty-one hundred and nineteen. The Water Commissioner, Collector of Water Rates and the Comptroller of the City shall issue, upon the acceptance and approval of applications in the form prescribed in Section 23.22.020, licenses therefor, and shall collect the meter rates charged according to the provisions of the ordinance of the City now in force, or which may hereafter be adopted for the furnishing of water to users thereof within the City. (1948 C., Ch. 55, § 28; 1960 C., § 557.010; 1994 C., § 23.22.010.)

23.22.020 Application.

Either of the parties designated in Section 23.22.010 desiring to draw water for domestic use only, from such

main, shall make a written application therefor, in duplicate; one copy thereof to be filed with the Water Commissioner and the other with the collector of water rates. This application shall contain an accurate description of the location of his meter and of the character and location of his private pipe line and the number of connections to it. The applicant shall in such application agree that his private pipe line, meter and other appurtenances for receiving water from such main shall be subject to the same control, inspection and regulations of the City as the private pipe lines, meters and appurtenances of users of water within the City, and shall agree to obey all ordinances, rules and regulations of the City now in force, or which may hereafter be adopted, relating to the furnishing of water to consumers within the City. (1948 C., Ch. 55, § 29; 1960 C., § 557.020; 1994 C., § 23.22.020.)

Chapters 23.24—23.28

(RESERVED)

DIVISION II. TAXATION

Charter:

Art. I § 1(24) License taxes

RSMo:

RSMo 153.030 (2016) Taxation of public utility companies

McQuillin:

44.192 Gross receipts "tax"

Chapter 23.29

EXCLUSION FROM TAXES

Sections:

23.29.010 Excluded payments.

23.29.010 Excluded payments.

No payments made to public utilities (i) by the City of St. Louis or (ii) from and after January 1, 1996, by any political subdivision operating a facility for which the City of St. Louis has a direct debt service obligation shall be included in the definition of the term "receipts" on which gross receipts taxes are imposed or collected under authority of ordinances of the City of St. Louis. (1994 C., § 23.29.010; Ord. No. 64114, § 1, 1997; Ord. No. 57682, § 1, 1978.)

Chapter 23.30

ELECTRICAL COMPANIES GROSS RECEIPTS TAX

For exclusion from taxes, see Ch. 23.29.

Cases:

Ordinance 41572 of city of St. Louis, imposing a license tax on the supplying of electricity and exempting certain persons therefrom, held invalid as special law. *Laclede Power & Light Co. v. City of St. Louis,* 182 S.W. 2d 70 (1944).

Sections:

23.30.005 Definitions.
23.30.010 Generally.
23.30.020 Statement of gross receipts.
23.30.030 Gross receipts tax.
23.30.040 Bond.

23.30.005 Definitions.

For the of this chapter, the term:

A. "Billing period" means a utility service usage period of not less than 26 nor more than 35 days, except for initial, corrected or final bills, in which case the rate should be prorated if necessary.

B. "Gross receipts" means the aggregate amount of all sales and charges of the commodities or services by every person engaged in the business of furnishing electricity for light, heat or power for the use of the public in the City during any period less discounts, credits, refunds, sales taxes and uncollectible accounts actually charged off during the period.

C. "Residential customer" means customers subject to the residential service rate tariff as approved by the Missouri Public Service Commission. (1960 C., § 152.030(part); 1994 C., § 23.30.005; Ord. No. 58330, § 1(part), 1981; Ord. No. 57904, § 1(part), 1979.)

23.30.010 Generally.

No person furnishing electricity for light, heat or power for the use of the public shall be entitled to any privilege conferred by this chapter, except upon the following conditions set forth in this chapter. (1948 C., Ch. 55, § 77(part); 1960 C., § 152.010; 1994 C., § 23.30.010.)

23.30.020 Statement of gross receipts.

Such person shall file with the Register his acceptance of all the terms of this Code and agree to file with the Comptroller on or before the second to last day of each month commencing October, 1969, a statement of

gross receipts from the business of supplying electricity for light, heat or power within the City for the next preceding month. This statement shall be verified by the person so filing and shall be subject to audit by the Comptroller. (1948 C., Ch. 55, § 77(a); 1960 C., § 152.020; 1994 C., § 23.30.020; Ord. No. 55392, § 1, 1969.)

23.30.030 Gross receipts tax.

A. Every person engaged in the business of distributing and selling electricity for heating, lighting, power and refrigeration for use of the public in the City shall pay to the City a tax equal to ten percent (10%) of the gross receipts of such business. Provided, however, that for each billing period beginning after June 30, 1983, such person shall pay to the City a tax equal to ten percent (10%) of the gross receipts of such business which are derived from all users who are not residential customers and four percent (4%) of the gross receipts derived from all users who are residential customers.

B. A portion of this tax imposed hereby is for the use and occupation of the streets and other public highways of the City by such person for its distributing system. From the proceeds of the above payments, the Comptroller is hereby authorized and directed to place to the credits of the "Street Improvement Fund" established by Ordinance 58894, an amount equal to 0.75% of the amount of the gross receipts upon which a tax is levied.

C. There is hereby established "The Equitable Relief From Utility Tax Fund" to the credit of which fund the Comptroller is hereby directed and authorized to place the proceeds from such tax from those City residents directly aided by the Low Income Home Energy Assistance Program and the Dollar More Program. The amount of tax monthly beginning July 1, 2008, each year to be made available from appropriation in the general appropriation ordinance, in order to assist low income residents of the City of St. Louis in the payment of their electric heating and cooling service. The Missouri Division of Family Services and the Dollar More Program shall provide monthly statements to the Comptroller, in the form he approves, indicating the amount of gross revenue and tax paid through the program.

(1948 C., Ch. 55, § 77(b); 1960 C., § 152.030(part); 1994 C., § 23.30.030; Ord. No. 67992, § 1, 6-24-2008; Ord. No. 60564, § 2, 1987; Ord. No. 60248, § 2, 1987; Ord. No. 58976, § 1, 1983; Ord. No. 58604, § 1, 1982; Ord. No. 58330, § 1(part), 1981; Ord. No. 57904, § 1(part), 1979; Ord. No. 56069, § 1, 1971; Ord. No. 55963, § 1, 1971; Ord. No. 54724, § 1, 1967.)

23.30.040 Bond.

Such person shall, at the time of filing his acceptance, file with the Register his penal bond in the sum of twenty thousand dollars, conditioned as follows:

A. He will comply with all the conditions of this chapter, any ordinance which may be enacted regulating the placing of wires, tubes or cables in the streets, alleys and public places for the purpose of supplying electricity for light, heat or power, with all regulations of the Board of Public Service relating to such subject matter;

B. He will make the statements and payments required by this chapter;

C. He will save the City harmless and indemnified from any loss, costs or damage by reason of the exercise of any privilege granted by this chapter or by any ordinance which may be enacted relating to the same subject matter. (1948 C., Ch. 55, § 77(c); 1960 C., § 152.040; 1994 C., § 23.30.040.)

Chapter 23.32

TELEPHONE AND TELEGRAPH COMPANIES GROSS RECEIPTS TAX

For exclusion from taxes, see Ch. 23.29.

Sections:

23.32.010 Annual reports.
23.32.020 Examine books—Deficiencies.
23.32.030 Generally.
23.32.040 Statement of gross receipts.
23.32.050 Gross receipts tax.
23.32.060 Bond.
23.32.070 Comptroller's powers.
23.32.080 Penalty for violation of Sections 23.32.060 and 23.32.070.

23.32.010 Annual reports.

The Director of Public Utilities shall report to the Comptroller on or about July 1 of each year the extent of streets, alleys and public places over and along which are erected pole lines and wires, tubes and cables of each telegraph and telephone corporation not paying ten percent of its gross receipts into the City Treasury, all the wires, tubes or cables on housetops or on poles not owned by the wire owner and the number of the

crossings or intersections of lines carried on poles of other corporations. (1948 C., Ch. 55, § 78; 1960 C., § 153.010; 1994 C., § 23.32.010; Ord. No. 55964, § 1(part), 1971; Ord. No. 54725, § 1(part), 1967.)

23.32.020 Examine books—Deficiencies.

Should the Comptroller not be satisfied of the accuracy of any statement required in Section 23.32.010, he may require officers and employees of the corporation concerned to appear before him and submit themselves and its books and papers to his examination. Should he ascertain from any of this material or from any other information that such statement is not accurate he shall order such corporation to pay him forthwith the ascertained deficiency. (1948 C., Ch. 55, § 79; 1960 C., § 153.020; 1994 C., § 23.32.020; Ord. No. 55391, § 1(part), 1969.)

23.32.030 Generally.

No telegraph or telephone corporation shall be privileged to use the streets, alleys and public places of the City provided in this chapter, except upon the following conditions set forth in this chapter. (1948 C., Ch. 55, § 80(part); 1960 C., § 153.030; 1994 C., § 23.32.030.)

City Counselor Ops.: 10460

23.32.040 Statement of gross receipts.

Each corporation about to commence business shall file with the Register, at the time the application is made for the use of the streets, alleys, or public places, its written acceptance of privilege granted by this Code and having agreed in such application that it will on or before the second to last day of each month commencing October, 1969, file with the Comptroller a statement of its gross receipts from its telephone and telegraph business within the City for the next preceding month. This statement shall be verified by the affidavit of its president or secretary. (1948 C., Ch. 55, § 80(a); 1960 C., § 153.040; 1994 C., § 23.32.040; Ord. No. 55391, § 1(part), 1969.)

23.32.050 Gross receipts tax.

Such corporation shall, at the time of filing such statement, pay into the City Treasury ten percent of the amount of such gross receipts. This amount shall be in addition to all other taxes imposed by law. From the proceeds of the above payments, the Comptroller is authorized and directed to place to the credit of the "Unimproved Street Fund," established by Ordinance 55852, an amount equal to 0.15% of the amount of the gross receipts.

For the purpose of this chapter the term "gross receipts" means the aggregate amount of all sales and charges of any company engaged in the telephone and telegraph business obtained from its customers within the City for any services, there provided during any period less discounts, credits, refunds, sales taxes and uncollectible accounts actually charged off during the period. (1948 C., Ch. 55, § 80(b); 1960 C., § 153.050; 1994 C., § 23.32.050; Ord. No. 56070, § 1, 1971; Ord. No. 55964, § 1(part), 1971; Ord. No. 54725, § 1(part), 1967.)

Cases:

A ten percent charge on gross receipts imposed against telegraph company pursuant to this section was a rent rather than a tax and was invalid for (1) impairment of contractual rights, (2) violation of equal protection guarantees, and (3) violation of the Commerce Clause of the United States Constitution. *City of St. Louis v. Western Union,* 760 S.W. 2d 577 (Mo. App. 1988).

23.32.060 Bond.

Each corporation shall, at the time of such filing, also file with the Register a good and sufficient penal bond in the sum of twenty thousand dollars. This bond shall be conditioned as follows:

A. The corporation will comply with all the provisions of this section and of all ordinances which may hereafter be enacted relating to telephone and telegraph corporations;

B. The corporation will pay into the City Treasury the percentage of its gross receipts as provided by this chapter. (1948 C., Ch. 55, § 80(c); 1960 C., § 153.060; 1994 C., § 23.32.060.)

23.32.070 Comptroller's powers.

Should the Comptroller not be satisfied of the accuracy of any statement required by this chapter, he may require officers and employees of the corporation concerned to appear before him and submit themselves and its books and papers to his examination. Should he ascertain from any of this material or from any other information that the gross receipts of such corporation during the time specified were greater than the amount stated, such corporation, notwithstanding such statement, shall pay into the City Treasury ten percent of its gross receipts as ascertained by the Comptroller. (1948 C., Ch. 55, § 81; 1960 C., § 153.070; 1994 C., § 23.32.070; Ord. No. 55964, § 1(part), 1971; Ord. No. 54725, § 1(part), 1967.)

23.32.080 Penalty for violation of Sections 23.32.060 and 23.32.070.

Any telegraph or telephone corporation or any president, manager, superintendent or local officer in charge thereof who shall violate or fail to comply with any of the provisions of Sections 23.32.060 and 23.32.070 shall be guilty of a misdemeanor; and each day's refusal or neglect to pay the amount due for any six months, as provided in Sections 23.32.030—23.32.060 within ten days after the same becomes due and payable, shall constitute a separate offense. (1948 C., Ch. 55, § 82; 1960 C., § 153.080; 1994 C., § 23.32.080.)

Chapter 23.34

TELEPHONE COMPANY ALTERNATIVE TAX

Sections:

23.34.010 Telecommunications providers and fiber network providers to pay tax.

23.34.020 Gross receipts tax.

23.34.030 Statement of gross receipts.

23.34.040 Comptroller's powers.

23.34.080 Effect of chapter.

23.34.010 Telecommunications providers and fiber network providers to pay tax.

Every entity now or hereafter engaged in a general telecommunications business in the City, providing telecommunications, telecommunications exchange, or local, toll, or long distance telephone service to its customers with a service or billing address within the St. Louis City limits ("telecommunications providers") shall pay to the City a tax as hereinafter provided in this chapter.

Every entity now or hereafter engaged in providing fiber networks to customers using fiber networks, built in whole or in part in the City's public right-of-way, who are not subject to franchise fees, or gross receipts taxes, ("fiber network providers"), shall pay to the City a tax as hereinafter provided in this chapter.

Telecommunications providers and fiber network providers shall pay the City a tax as hereinafter provided, except that no entity already required to pay a franchise fee, or gross receipts tax, or linear foot fees shall also be required to pay a gross receipts tax hereunder.

This chapter is not intended to apply to small wireless facilities as defined in RSMo 67.5112. (1948 C., Ch. 55, § 83; 1960 C., § 154.010; 1994 C., § 23.34.010; Ord. No. 70905, § 1(23.34.010), 2-1-2019.)

23.34.020 Gross receipts tax.

Every telecommunications provider and fiber network provider shall pay to the City a tax equaling seven and one half percent of the gross receipts of any such company obtained from customers or from other use of its fiber networks for any services there provided, except such receipts as represent charges for message rate toll, or long distance, telephone service, charges for message rate interzone telephone service, charges for exclusive interstate service of any kind, charges for Morse, telegraph or radio program transmission facilities, or for other services furnished exclusively and permanently in connection with services extending beyond the boundaries of the City, charges for the billing and collecting for telegrams, charges for the sale of telephone directories, charges for Yellow Pages advertising, charges for the rental of plant facilities or other property not currently used by any such company in furnishing its telephone services, and charges which combine both receipts which are herein taxed and which are herein excepted in all cases in which the demonstrable cost to any such telephone company in making a separation between the revenues taxed and those excepted shall exceed the evident revenue to be derived from the City hereunder. "Gross receipts" does not include an amount equal to all discounts, credits, refunds, overcharges, or overpayments, sales taxes and uncollectible accounts actually charged off, returned, or given credit for by such telephone company to its subscribers during the period for which the return is made, and all discounts, credits, refunds, overcharges, or over payments, sales taxes, and uncollectible accounts actually charged off, returned or given credit for by such telephone company to its subscribers in a prior return period but not previously claimed as a deduction from prior reported gross receipts. Any such tax shall not be applicable to gross receipts from charges for internet access only, as that term is used in the Federal Internet Freedom Act, P.L. 105-277, as amended. Neither this section, nor any provision hereof, shall be deemed or construed as a waiver, relinquishment, creation, expansion, modification or termination of any rights which the City may already have with respect to any telecommunications provider and fiber network provider, nor shall it be deemed or construed to alter, amend or modify in any way the settlement agreement entered into between the City of St. Louis and Southwestern Bill Telephone Company and its successors on September 3, 1998. If any entity is not required to pay, or is exempt from, gross receipt tax, such entity may still be subject to the linear foot fee, as codified in Chapter 23.64 of the Revised Code of the City of St. Louis. (1948 C., Ch. 55, § 84; 1960 C., § 154.020; 1994 C., § 23.34.020; Ord. No. 70905, § 1, 2-1-2019 (23.34.020); Ord. No. 67717, §§ 1—4, 2007; Ord. No. 56071, § 1, 1971; Ord. No. 55965, § 1(part), 1971; Ord. No. 54726, § 1(part), 1967.)

23.34.030 Statement of gross receipts.

Every telecommunications provider and fiber network provider on or before the second to last day of each month shall file with the Comptroller a verified statement of its gross receipts upon which the gross receipts tax is laid for the next preceding month, and shall pay the tax at the same time as the filing of the report. (1948 C., Ch. 5, § 85; 1960 C., § 154.030; 1994 C., § 23.34.030; Ord. No. 70905, § 1, 2-1-2019 (23.34.030); Ord. No. 55393, § 1, 1969.)

23.34.040 Comptroller's powers.

Should the Comptroller be not satisfied of the accuracy of any statement required in Section 23.34.030, he may require officers and employees of the corporation concerned to appear before him and submit themselves and its books and papers to his examination. Should he ascertain therefrom or from any other information that the gross revenue herein taxed of such corporation during the specified time was greater than the amount stated, such corporation, notwithstanding such statement, shall pay into the City Treasury ten percent of its gross revenues so taxed herein as ascertained by the Comptroller. The Comptroller is autho-

rized and directed to place to the credit of the "Unimproved Street Fund," established by Ordinance 55852, from the proceeds of the gross receipts tax herein provided, an amount equal to 0.15% of the gross receipts so taxed. (1948 C., Ch. 55, § 86; 1960 C., § 154.040; 1994 C., § 23.34.040; Ord. No. 55965, § 1(part), 1971; Ord. No. 54726, § 1(part), 1967.)

23.34.080 Effect of chapter.

Neither this chapter, nor any agreement effected by acceptance hereof, nor any provisions hereof, shall be held or construed as a waiver, relinquishment, modification or termination of any rights the City may already possess to use the poles and conduits, or other plant of any such telephone company, or as a waiver, relinquishment, modification or termination of any rights any such telephone company may possess to conduct its business as presently conducted in the City. (1948 C., Ch. 55, § 90; 1960 C., § 154.080; 1994 C., § 23.34.080.)

Chapter 23.36

GAS COMPANY GROSS RECEIPTS TAX

For exclusion from taxes, see Ch. 23.29.

Sections:

23.36.005 Definitions.
23.36.010 Gross receipts tax.
23.36.020 Statement of gross receipts.
23.36.030 Tax does not exempt other taxes.
23.36.040 Gross receipts tax.
23.36.050 Statement of gross receipts.
23.36.060 Tax applicability.
23.36.070 Tax in lieu of other taxes.

23.36.005 Definitions.

For the purposes of this chapter:

A. "Billing period" means a utility service usage period of not less than 26 nor more than 35 days, except for initial, corrected or final bills, in which case the rate should be prorated if necessary.

B. "Gross receipts" means the aggregate amount of all sales and charges of the commodities or services by every person engaged in the business of selling or distributing natural, artificial or mixed natural and artificial gas for heating, lighting, power and refrigeration for the use of the public in the City during any period less discounts, credits, refunds, sales taxes and uncollectible accounts actually charged off during the period.

C. "Residential customer" means a customer using residential service.

D. "Residential service" is service to a customer using gas to provide either space heating, air-conditioning, cooking, water heating or other gas use for domestic household purposes through a single meter for either a single-family dwelling unit or for service to not more than four (4) single-family dwelling units served by a single meter in a multiple-family building or portion thereof; provided, however, that in any event the usage of residential service must constitute more than fifty percent (50%) of the total metered usage. (1960 C., § 155.020(part); 1994 C., § 23.36.005; Ord. No. 57959, § 1(part), 1979; Ord. No. 57903, § 1(part), 1979.)

23.36.010 Gross receipts tax.

A. Every person engaged in the business of distributing and selling natural, artificial or mixed natural and artificial gas for heating, lighting, power and refrigeration for use of the public in the City through pipe lines laid in the streets and other public highways of the City, shall pay to the City a tax equal to ten percent (10%) of the gross receipts of such business. Provided, however, that for each billing period beginning after June 30, 1983, such person shall pay to the City a tax equal to ten percent (10%) of the gross receipts of such business which are derived from all users who are not residential customers and four percent (4%) of the gross receipts derived from all users who are residential customers.

B. A portion of this tax imposed hereby is for the use and occupation of the streets and other public highways of the City by such person for its distributing system. From the proceeds of the above payments, the Comptroller is hereby authorized and directed to place to the credits of the "Street Improvement Fund" established by Ordinance 58894, an amount equal to 0.75% of the amount of the gross receipts upon which a tax is levied.

C. There is hereby established "The Equitable Relief From Utility Tax Fund" to the credit of which fund the Comptroller is hereby directed and authorized to place the proceeds from such tax from those City residents directly aided by the Low Income Home Energy Assistance Program and the Dollar Help Program. The amount of tax monthly beginning July 1, 1988, each

year to be made available for appropriation in the general appropriation ordinance, in order to assist low income residents of the City of St. Louis in the payment for their gas heating service. The Missouri Division of Family Services and the Dollar Help Program shall provide monthly statements to the Comptroller, in the form he approves, indicating the amount of gross revenue and tax paid through the program. (1948 C., Ch. 55, § 92; 1960 C., § 155.010; 1994 C., § 23.36.010; Ord. No. 60565, § 1, 1987; Ord. No. 60247, § 2, 1987; Ord. No. 58977, § 1, 1983; Ord. No. 58608, § 1, 1982; Ord. No. 58331, § 1, 1981; Ord. No. 57903, § 1(part), 1979; Ord. No. 55966, § 1(part), 1971.)

Cases:

Sums which gas company had collected from customers, and which it had segregated for repayment to customers on termination of gas rate proceedings, did not constitute "gross receipts" within meaning of Ord. No. 41325, *Laclede Gas Co. v. City of St. Louis,* 253 S.W. 2d 832 (153).

Ordinance imposing gross receipts tax on those in business of selling or distributing gas for heating, lighting, power or refrigeration was not applicable to corporation selling natural gas under private contract for industrial purposes. *City of St. Louis v. Mississippi River Fuel Corp.,* 57 F. Supp. 549 (1944).

Under ordinance of St. Louis taxing distributors and sellers of gas for "public use" in the city, corporation not chartered or licensed as a public utility held not subject to ordinance. *City of St. Louis v. Mississippi River Fuel Corp.,* 97 F. 2d 726 (1938).

23.36.020 Statement of gross receipts.

Every person engaged in the business of distributing and selling natural, artificial or mixed natural and artificial gas for heating, lighting, power or refrigeration for the use of the public in the City shall file with the Comptroller not later than the second to last day of each month commencing October, 1969, a statement of his gross receipts from such business for the preceding month. This statement shall be accompanied by a payment to the City in an amount equal to the gross receipts tax due, based on the statement filed. (1948 C., Ch. 55, § 93; 1960 C., § 155.020(part); 1994 C., § 23.36.020; Ord. No. 57959, § 1(part), 1979; Ord. No. 57903, § 1(part), 1979; Ord. No. 55966, § 1(part), 1971; Ord. No. 55394, § 1(part), 1969; Ord. No. 54727, § 1(part), 1967.)

23.36.030 Tax does not exempt other taxes.

The tax required to be paid by this chapter shall be a tax on the use and occupation of the streets and other public highways of the City for the pipe lines of the distributing system of persons engaged in the business of distributing and selling natural, artificial or mixed natural and artificial gas for heating, lighting, power or refrigeration for the use of the public in the City. Nothing contained in this chapter shall be construed so as to exempt any such person from the payment to the City of a manufacturer's and merchant's excise tax, nor from the payment of the tax which the City levies upon any real or personal property or franchise belonging to any such person. Nor shall anything contained in this chapter apply to any person now or hereafter engaged in the business of distributing and selling natural, artificial or mixed natural and artificial gas for heating, lighting, power or refrigeration for the use of the public in the City under authority originally conferred by the general assembly of the State of Missouri. (1948 C., Ch. 55, § 94; 1960 C., § 155.030; 1994 C., § 23.36.030.)

City Counselor Ops.: 8941

23.36.040 Gross receipts tax.

Every person engaged in the business of selling or distributing natural, artificial or mixed natural and artificial gas for heating, lighting, power and refrigeration in the City shall pay the City, as a license tax, a sum equal to ten percent (10%) of the gross receipts of such business. Provided, however, that for each billing period beginning after October 31, 1979, such person shall pay to the City a tax equal to 10% of the gross receipts of such business which are derived from all users who are not residential customers and 5% of the gross receipts derived from all users who are residential customers. Provided further that for each selling period beginning after June 30, 1981, such person shall pay to the City a tax equal to 10% of the gross receipts of such business which are derived from all users who are not residential customers and 4% of the gross receipts derived from all users who are residential customers. Provided further that for each billing period beginning after June 30, 1982, such person shall pay to the City a tax equal to 10% of the gross receipts of such business which are derived from all users who are not residential customers and 2% the gross receipts of such business derived from all users who are residential customers. Provided further that for each billing period beginning after June 30, 1983, such person shall pay to the City a tax equal to 10% of the gross receipts of such business which are derived from all users who are not residential customers and 0% of the gross receipts derived from all users who are residential customers. (1948 C., Ch. 55, § 95; 1960 C., § 155.040; 1994 C., § 23.36.040; Ord. No. 57903, § 1(part), 1979; Ord. No. 55966, § 1(part), 1971; Ord. No. 54727, § 1(part). 1967.)

23.36.050 Statement of gross receipts.

Every person engaged in the business described in Section 23.36.040 shall file with the Comptroller not later than the second to last day of each month commencing October, 1969, a sworn statement of his gross receipts from such business for the preceding month. The gross receipts statements provided for in Section 23.36.020 and in this section shall be subject to audit by the Comptroller to establish the accuracy thereof. Any deficiencies established by the Comptroller and confirmed by the person filing the statement of gross receipts, shall subject the person filing such statement to supplemental payment therefor. The Comptroller upon receiving payment with the statement required under Section 23.36.020 and this section shall immediately deposit such payment with the treasurer. (1948 C., Ch. 55, § 96(part); 1960 C., § 155.050; 1994 C., § 23.36.050; Ord. No. 55394, § 1(part), 1969; Ord. No. 54727, § 1(part), 1967.)

23.36.060 Tax applicability.

The tax provided for in Section 23.36.040 shall not apply to any person now or hereafter paying a gross receipts tax for the use and occupancy of streets and other public highways of the City. (1948 C., Ch. 55, § 96(part); 1960 C., § 155.060; 1994 C., § 23.36.060.)

23.36.070 Tax in lieu of other taxes.

The tax herein required to be paid shall be in lieu of any other excise, license or occupation tax on any person engaged in the business described in Section 23.36.040; provided, that nothing herein contained shall be so construed as to exempt any such person from the payment to the City of the tax which the City levies upon any real or personal property belonging to any such person. (1948 C., Ch. 55, § 97; 1960 C., § 155.070; 1994 C., § 23.36.070.)

Chapter 23.38

WATER WORKS REVENUE FUND TAX

Sections:

23.38.010 Levied.

23.38.020 Payment.

23.38.010 Levied.

There is levied and imposed a tax in the amount of ten percent on the gross receipts of the Water Works Revenue Fund. Of such ten percent, six percent shall be collected in the rate structure provided for in Ordinance No. 55357, approved July 17, 1969 (codified in Chapters 23.16 and 23.18), and four percent shall be passed on to the consumer. (1948 C., Ch. 55, § 98; 1960 C., § 156.010; 1994 C., § 23.38.010; Ord. No. 55967, § 1(part), 1971; Ord. No. 54728, § 1(part), 1967; Ord. No. 45822, § 1(98), 1951.)

23.38.020 Payment.

The Comptroller shall transfer, on the last day of each month, from the Water Works Revenue Fund to Municipal Revenue, a sum equivalent to ten percent of the gross payments into the Water Works Revenue Fund during such month. The Comptroller is authorized and directed to place to the credit of the "Unimproved Street Fund," established by Ordinance 55852, from the proceeds of the gross receipts tax herein provided, an amount equal to 0.15% of the gross receipts so taxed. (1948 C., Ch. 55, § 99; 1960 C., § 156.020; 1994 C., § 23.38.020; Ord. No. 55967, § 1(part), 1971; Ord. No. 54728, § 1(part), 1967; Ord. No. 45822, § 1(99), 1951.)

Chapter 23.40

LATERAL SEWER LINE REPAIR FEE

Sections:

23.40.010 Cost of repair—Payment from special account.

23.40.020 Charge to be levied.

23.40.030 Charge—Effective date.

23.40.040 Special account—Established.

23.40.050 Charge—Collection.

23.40.060 Comptroller authority—Report.

23.40.070 Report review.

23.40.080 Contracting for repairs.

23.40.090 Bidder and subcontractor wage payment.

23.40.100 Repair program requirements.

23.40.110 Minority participation.

23.40.120 Unpaid bills—Enforcement collection.

23.40.010 Cost of repair—Payment from special account.

Whenever any underground lateral sewer service pipe or its attachment that leads from any sewer main that is maintained by the St. Louis Metropolitan Sewer District (hereafter known as MSD), which line provides service to any residential property having six (6)

or less dwelling units, exceeds one (1) year in age service and is current in the payment of the charges provided by this chapter, is found to be broken or leaking, and if the break or leak is located within any public or private street, alley, right-of-way or easement, the cost of said repairs shall be paid out of the special account established by this chapter. (1994 C., § 23.40.010; Ord. No. 61364, § 1, 1989.)

23.40.020 Charge to be levied.

A. There is hereby levied a charge of twenty-eight dollars ($28.00) to be collected annually on all residential property having six (6) or less dwelling units, to provide the funds needed to pay the cost of the repairs to broken leaking lateral sewer service lines as provided in this chapter.

B. The annual charge of twenty-eight dollars ($28.00) shall be collected by the Collector of Revenue by adding such fee to the general tax levy bills on property owners. All revenue received from the annual charge of twenty-eight dollars ($28.00) from such combined bill is for the purpose of providing for, insuring or guaranteeing the repair of lateral sewer lines and shall be separated from all other revenues and credited to the special account established for this purpose. (1994 C., § 23.40.020; Ord. No. 62680, § 2, 1992; Ord. No. 61364, § 2, 1989.)

23.40.030 Charge—Effective date.

Provided that approval is first received from the voters of the City of St. Louis as provided herein, the eligibility for leaking lateral sewer service pipe repair shall become effective ninety (90) days immediately following the first quarterly payment of the charge. Any residential accounts of six (6) or less dwelling units, which have been issued leak notices prior to that date, shall not be eligible, to have the leak repaired under this program. (1994 C., § 23.40.030; Ord. No. 61364, § 3, 1989.)

Editor's Note:

The proposed levy of a charge for sewer line repair was approved by voters on August 8, 1989.

23.40.040 Special account—Established.

The Comptroller of the City is hereby authorized and directed to establish a special account for the deposit of said charge. Special account funds generated by the charge shall be deposited in said special account and shall be kept separate and apart from all other funds. The funds so collected and deposited in said special account shall be used solely for the purpose of paying for the costs reasonably associated with and necessary to administer and carry out the leaking lateral sewer service line repairs. All interest generated on deposited funds shall be accrued to the special account so established. (1994 C., § 23.40.040; Ord. No. 61364, § 4, 1989.)

23.40.050 Charge—Collection.

The Collector of Revenue for the City of St. Louis shall be responsible, except as otherwise herein provided, for the collection of the annual bill and be compensated as provided by RSMo 82.650. Expenses above the fees collected under said statutes shall be compensated by annual appropriations. (1994 C., § 23.40.050; Ord. No. 62680, § 5, 1992; Ord. No. 62147, § 2, 1990; Ord. No. 61364, § 5, 1989.)

23.40.060 Comptroller authority—Report.

The Comptroller of the City is the overview authority on the operation and administration of the lateral sewer fund; he shall assume responsibility for requesting billing of the sewer line fee, he shall coordinate collection efforts with the Collector of Revenue and insure the billing file maintenance corrections are updated. The Comptroller of the City of St. Louis shall review the receipts and the expenditures of funds involved in said Special Account and shall make a written report setting forth in sufficient detail the receipts and expenditures for the last year and the anticipated receipts and expenditures for the next year. Said report shall be delivered to the Board of Estimate and Apportionment and the Board of Aldermen before the last day of the month immediately following the end of each fiscal; year of the City of St. Louis after the effective date set by Section 23.40.030. Provided, however, that the Comptroller may report at any time to the Board of Estimate and Apportionment if conditions warrant. (1994 C., § 23.40.060; Ord. No. 62680, § 6, 1992; Ord. No. 62147, § 3, 1990; Ord. No. 61364, § 6, 1989.)

23.40.070 Report review.

The Board of Estimate and Apportionment shall, upon receipt of the written report from the Comptroller, thoroughly review said report. The Board of Estimate and Apportionment shall recommend to the Board of Aldermen an increase or decrease in the charge if it determines that the existing level is higher or lower than necessary to cover the anticipated costs of the project.

Only the Board of Aldermen shall have authority by ordinance to decrease the charge herein established. (1994 C., § 23.40.070; Ord. No. 61364, § 7, 1989.)

23.40.080 Contracting for repairs.

A. The City, through the Street Department, is hereby authorized and directed to enter into contracts with City-licensed master plumbers and/or City-licensed master drainlayers to repair lateral sewer line breaks. Said contracts shall only be entered into after verification by the Street Department and the St. Louis Metropolitan Sewer District (hereinafter MSD) that the repairs are necessary and it involves an underground lateral sewer service pipe or its attachment that leads from any sewer main that is maintained by MSD, which line provides services to any residential property having six (6) or less dwelling units and meets the other conditions of Section 23.40.010.

B. Upon said verification by the Street Department and MSD, the Street Department shall within two (2) working days notify the property owner and issue bids for the repairs. Said bids, in order to be considered, shall be returned within two (2) working days from issuance. The lowest and best bidder shall be awarded the contract. Upon being notified of the bid award, the successful bidder shall complete the repair work within five (5) days for each location awarded in each specific bid. Prior to completion of the repair work, the contractor shall notify the Plumbing Division of the Building Division which shall inspect and approve the work. Upon notice of completion of all work, the Street Department and Plumbing Division shall have three (3) working days to verify the repairs and ancillary work has been successfully completed.

C. The Street Department has the authority to administer said contracts and to promulgate rules and regulations, not inconsistent with this chapter, to effectuate the purpose of this chapter. Upon submission of the verification the Street Department shall within three (3) working days prepare a voucher for said repair work and forward it to the Comptroller's Office for payment, which shall be made within reasonable period of time after submission to the Comptroller's Office.

D. If the Street Department and Plumbing Division cannot approve or verify that the repairs have been completed after being notified by the contractor, said contractor shall be notified and the Board of Public Service shall hear and determine any disputes.

E. The Comptroller is hereby authorized and directed to contract with MSD to reimburse MSD its actual costs for the work performed by MSD under this chapter. (1994 C., § 23.40.080; Ord. No. 61878, § 2, 1990; Ord. No. 61364, § 8, 1989.)

23.40.090 Bidder and subcontractor wage payment.

All successful bidders and their subcontractors, if said subcontracting is permitted by contract, shall pay no less than the prevailing hourly rate of wages for each craft or type of workmanship required to repair any sewer lines as determined by the Department of Labor and Industrial Relations of Missouri pursuant to RSMo 290.210 to 290.340. (1994 C., § 23.40.090; Ord. No. 61878, § 3, 1990; Ord. No. 61364, § 9, 1989.)

23.40.100 Repair program requirements.

The lateral sewer line repair program is to include, but be not limited to: excavation, sewer line repair, backfill and surface repair within the public or private street, alley, right-of-way or easement. When the sewer lateral is repaired, and, through testing, the lateral is found to be broken or leaking beyond the easement, it becomes the property owner's responsibility to make the repairs on his or her property within thirty (30) days of notification by the Plumbing Section except in the event that the City determines that new technologies make it more cost effective to administer repairs from the sewer trap (located on private property) such repairs will be completed at no cost to the property owner. (1994 C., § 23.40.100; Ord. No. 61878, § 4, 1990; Ord. No. 61364, § 10, 1989.)

23.40.110 Minority participation.

In order to insure that there is adequate minority participation in the awarding of repair subcontracts, there shall be established a twenty-five percent (25%) minority participation goal. The City shall be required to work with the Civil Rights Enforcement Agency (CRNA) and Missouri-Kansas Contractor Association (MoKan) to insure the implementation of this goal. (1994 C., § 23.40.110; Ord. No. 61878, § 5, 1990; Ord. No. 61364, § 11, 1989.)

23.40.120 Unpaid bills—Enforcement collection.

If said lateral sewer line bill remains unpaid, all delinquent lateral sewer line charges shall be enforced, processed and collected in the same manner as delinquent real estate taxes. (1994 C., § 23.40.120; Ord. No. 62680, § 3, 1992; Ord. No. 61364, § 17, 1989.)

Chapter 23.41

NATURAL GAS TRANSPORTATION LICENSE FEE

Sections:

23.41.010 Definitions.
23.41.020 License fee required.
23.41.030 Amount designated.
23.41.040 Payment schedule—Penalty.
23.41.050 Confidential information.
23.41.060 Effective date of fee.

23.41.010 Definitions.

As used in this chapter:

"Natural gas or methane consumer" means every corporation, company, association, joint stock company or association, partnership and person, their lessees, trustees or receivers, appointed by any court whatsoever, purchasing natural gas or methane from suppliers outside the City which is transported into the City for commercial or industrial use; natural gas or methane consumer does not include any person or entity purchasing natural gas or methane for use in residential property, or any person or company subject to a gross receipts tax under Chapter 23.36 of the City Code;

"Natural gas or methane" does not include any manufactured gases;

"Transporter" means any business entity engaged in the transport of gas through pipelines in the City directly to a gas consumer within the City. (1994 C., § 23.41.010; Ord. No. 62204, § 1, 1991.)

23.41.020 License fee required.

Natural gas or methane consumers shall pay to the City, in addition to all other taxes, payments or requirements now or hereafter required by law, an annual natural gas and methane transportation license fee on natural gas and methane purchased from suppliers outside the City and transported from out of the City to be used in the City for commercial or industrial use. (1994 C., § 23.41.020; Ord. No. 62204, § 2, 1991.)

23.41.030 Amount designated.

Such transportation license fee shall be a sum equal to eleven percent (11%) of the consumer (purchase) price for gas purchased from suppliers outside the City and transported from out of the City to a natural or methane gas consumer for use within the City. As used in this section, consumer price or purchase price means either (1) the index price times the volume of gas consumed plus any transportation charge not taxable under Chapter 23.36 of the City Code, or (2) the actual price of the gas times the volume consumed plus any transportation charge not taxable under Chapter 23.36 of the City Code. The term "index price" means a composite average of relevant spot market prices of natural gas derived from industry-recognized independent report services or such other index as the officer of the City having responsibility for collection of municipal licenses (the "Collection Officer") may establish. "Actual price" means the actual unit price paid for the gas consumed. (1994 C., § 23.41.030; Ord. No. 62204, § 3, 1991.)

23.41.040 Payment schedule—Penalty.

A. The license fee is payable in quarterly installments by each natural gas or methane consumer on or before the last day of February, May, August and November, respectively, of each year, based upon the consumer (purchase) price paid for out of the City natural gas or methane transported to such Consumer for use within the City during the preceding periods of three (3) calendar months ending, respectively, on the last days of December, March, June and September.

B. Within those time references each natural gas or methane consumer shall be responsible for payment of the natural gas and methane transportation license fee to the Collection Officer. Each transporter shall furnish the Collection Officer all available information concerning volumes or quantities of gas transported to natural gas or methane consumers on a monthly basis together with other reasonable necessary information relating to administration hereof. The Collection Officer is responsible for the administration of the collection of the license fee. He is authorized to adopt, promulgate, amend and enforce rules and regulations consistent herewith relating to any matter pertaining to the administration and enforcement of the provisions of this chapter.

C. For each and every month, or part thereof, any such gas consumer transportation license fee remains unpaid, after the same becomes due and payable, there shall be added as a penalty for such delayed payment two percent (2%), per month, of the amount of such license fee until the same is fully paid.

D. No business license shall be issued to any natural gas or methane consumer unless and until such consumer shall have paid to the City the full amount of

the above license fee as of each quarterly due date. (1994 C., § 23.41.040; Ord. No. 62204, § 4, 1991.)

23.41.050 Confidential information.

All information concerning volumes, quantities, price, aggregate cost and identity of suppliers of gas transported to natural gas or methane consumers, and any other information obtained by the Collection Officer in the administration and collection of the license fee imposed by this chapter, shall be confidential except for official purposes and except in accordance with judicial order. It shall be a violation of this chapter for any person to divulge such information and, upon conviction thereof, such person shall be subject to a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than six (6) months or both for each offense. (1994 C., § 23.41.050; Ord. No. 62204, § 5, 1991.)

23.41.060 Effective date of fee.

The fee imposed by this chapter shall take effect as of the first day of the first month following approval by the voters of the imposition of such fee. (1994 C., § 23.41.060; Ord. No. 62204, § 6, 1991.)

Editor's Note:

The fee imposed in this chapter was approved by voters on May 4, 1991.

DIVISION III. POLES, WIRES AND CONDUITS

Chapter 23.42

UNDERGROUND DISTRICT

This chapter was not codified in the 1960 Code.

Sections:

23.42.010 District described.
23.42.020 Certain apparatus may remain overhead.
23.42.030 Penalty for placing wires above surface.
23.42.040 Wires shall be an obstruction—Exception.
23.42.050 Penalty for failure to put wires underground.
23.42.060 Removal of poles and fixtures.
23.42.070 Permit required.
23.42.080 Board of Public Service.
23.42.090 Excluded persons.
23.42.100 Bond.
23.42.110 Transmission of electricity for communication.
23.42.120 Penalty for no permit.
23.42.130 City purchase of conduits.
23.42.140 Conduit—Maintenance.
23.42.150 Conduit—Construction—Changes.
23.42.160 Street repair.
23.42.170 Common trench.
23.42.180 Time limit.
23.42.190 Applicability of Sections 23.42.010—23.42.230 to certain corporations.
23.42.200 Acceptance of Sections 23.42.010—23.42.230 required.
23.42.210 Termination of rights.
23.42.220 Prices for services.
23.42.230 Leasing or subletting conduit space.
23.42.240 Overhead wire removal—Required.
23.42.250 Overhead wire removal—Yearly amount.
23.42.260 Overhead wire removal—Board of Public Service orders.

23.42.010 District described.

No wires, tubes or cables conducting or transmitting electricity shall be placed above the surface of any street, alley or public place in that district of the City bounded easterly by the Mississippi River, westerly by the west line of Twenty-second Street, northerly by the north line of Wash Street, southerly by the south line of Spruce Street and its prolongation to the west line of Twenty-second Street. Conductors above the surface may be placed inside of posts or brackets to connect lamps or signal boxes on streets with underground conductors, and such poles, wires, cables, tubes and other electrical conductors as may be necessary and convenient for local distribution may also be placed above the surface; provided, that such poles may be erected in alleys only, and plans and specifications therefor shall be approved and a permit issued for such poles by the Board of Public Service. (1948 C., Ch. 50, § 37; 1994 C., § 23.42.010.)

23.42.020 Certain apparatus may remain overhead.

All clocks, burglar alarm, commercial printer, nightwatch and other messenger callbox wires carrying currents of low tension and not fastened or attached to

poles or other fixtures placed or set in the streets, alleys or public places within the district described in Section 23.42.010 shall be permitted to remain overhead, provided the following conditions are met:

A. Such wires shall be strung not less than thirty-five feet above the surface and securely fastened;

B. Each wire or cable shall be insulated throughout so as to meet with the approval of the Department of Public Utilities and tagged with a lead tag impossible of removal without destruction of the attached wire or fixture and marked plainly with the name of the owner;

C. No such wires shall be used to connect with immoral places or places existing unlawfully and shall not be used for any illegal purpose. (1948 C., Ch. 50, § 38; 1994 C., § 23.42.020.)

23.42.030 Penalty for placing wires above surface.

Any person placing any wire, tube, cable, pole or other apparatus for conducting or transmitting electricity above the surface, along or across any street, alley or public place in the district described in Section 23.42.010 of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than ten dollars nor more than five hundred dollars, and each and every wire, tube or cable ever each and every street, alley or public place for each and every day shall constitute a separate offense. (1948 C., Ch. 50, § 39; 1994 C., § 23.42.030.)

23.42.040 Wires shall be an obstruction—Exception.

All conductors, poles and other apparatus used for conducting or transmitting electricity along or across any street, alley or public place in the district described in Section 23.42.010 of this chapter, shall be deemed an obstruction to, and encroachment on the highways, except those used by street railways as now authorized by special ordinance. (1948 C., Ch. 50, § 40; 1994 C., § 23.42.040.)

23.42.050 Penalty for failure to put wires underground.

Any person owning or using wires, tubes or cables for the purpose of conducting or transmitting electricity above the surface of and along or across any street, alley or public place within the district described in Section 23.42.010 who shall permit them to remain above the surface of such street, alley or public place after December 31, 1898, shall be guilty of a misdemeanor, and upon conviction thereof shall be fined not less than ten dollars nor more than one hundred dollars, and each and every wire over each and every street, alley or public place shall constitute a separate offense for each and every day that the wire, tube or cable is permitted to remain. (1948 C., Ch. 50, § 41; 1994 C., § 23.42.050.)

23.42.060 Removal of poles and fixtures.

All poles and other fixtures shall be removed by the owner thereof within ninety days after their wires, tubes and cables shall have been, for any reason, removed therefrom. (1948 C., Ch. 50, § 42; 1994 C., § 23.42.060.)

23.42.070 Permit required.

Any person who was authorized by the Charter prior to ninety days after the passage of Ordinance 18680 to operate wires, tubes or cables conducting, transmitting or employing electricity for public use and desiring to place these wires, tubes or cables under the surface of any of the streets, alleys or public places of the City is authorized after the expiration of ninety days from the approval of Ordinance 18680 to construct underground conduits and to place and operate wires, tubes and cables therein. Such person must first apply for, and receive from the Board of Public Service, a permit to construct conduits, ducts, manholes and other appurtenances as may be required for placing the wires, tubes or cables underground. This application shall be accompanied by full, general and detailed plans showing the route, capacity and dimensions of the conduits, ducts, manholes and other appurtenances. (1948 C., Ch. 50, § 43; 1994 C., § 23.42.070.)

23.42.080 Board of Public Service.

The Board of Public Service is authorized and directed, upon receipt of any application made, as provided in Section 23.42.070, or upon its own motion, to designate a day, which shall not be more than ninety days after the approval of Ordinance 18680, on which it will consider the matter of constructing conduits, ducts, manholes and other appurtenances in the streets, alleys and places named in the application or in the order made of its own motion, and shall give fifteen days' public notice by advertisement in the papers doing the City printing of the time, place and object of its meeting and of the streets, alleys and public places to be considered, and on such day all parties interested may appear and any person specified in Section 23.42.070 desiring to construct a conduit on any street, alley or public place shall present, with plans and details, a

written statement of his requirements. After such hearing the Board shall consider all of the applications, statements, plans and details presented and examine into the space available for conduits or ducts under such streets, alleys and public places and shall decide upon, prepare and approve plans, details, construction, conduits, ducts, manholes, materials and conditions as in its opinion the public interest seems to demand and shall include in the plans ducts, manholes and appurtenances as the City may require for the police and fire alarm telegraph and telephone system owned and operated by it, ducts, manholes and appurtenances to be constructed and maintained by the person receiving the permit and to be used by the City free of charge or cost of any kind. Where more than one application, statement or plan is presented to the Board it shall have power to compel such applicants to build and maintain joint conduits and should the construction thereof involve a joint outlay and disagreement among such applicants the Board shall have power to apportion such outlay. (1948 C., Ch. 50, § 44; 1994 C., § 23.42.080.)

23.42.090 Excluded persons.

All persons who fail to appear on the day and at the time designated and submit an application as above required in this chapter or fail to accept in writing the apportionment of costs made by the Board of Public Service or fail to deposit with the City Treasurer the amount required by ordinance as a special fund to be used by the Street Commissioner in connection with trenches excavated in the public streets and alleys within ten days after notice from the Board as to its findings shall be excluded from all privilege to obtain under Sections 23.42.010—23.42.230, both inclusive, of this chapter, conduit, duct or manhole facilities in the streets, alleys or public places named in the advertisement insofar as they are within the district described in Section 23.42.010. However, they shall not be excluded from such privilege in portions of streets, alleys and public places outside this district, or in streets, alleys and public places therein as are not included in the advertisement and no person shall hereafter obtain a permit for conduit privileges within such portion of the streets, alleys and public places named in the advertisement as are within the district. In regard to all streets, alleys or public places which have not been assigned, or which having been assigned are not occupied as herein provided, the Board may proceed and all persons as are specified in Section 23.42.070 of this chapter may make application and may acquire rights at any time hereafter in the manner and subject to the obligations, duties and conditions provided in Ordinance 18680. (1948 C., Ch. 50, § 45; 1994 C., § 23.42.090.)

23.42.100 Bond.

The Board of Public Service is authorized and directed to grant permits to construct, alter or repair conduits, ducts, manholes and other appurtenances under the surface of any street, alley or public place of the City and to string therein wires, tubes and cables for conducting and transmitting electricity for the production of light, heat or power under the terms and in accordance with the provisions of Sections 23.42.010—23.42.100, all inclusive, of this chapter, to any person furnishing or using electricity for light, heat or power for public use upon compliance by him with the terms and conditions of Sections 23.42.120—23.42.230, all inclusive, of this chapter and all ordinances in force at such time; provided, that he file with the Register a good and sufficient penal bond in the sum of ten thousand dollars conditioned that the conduits, ducts, manholes and other appurtenances shall be constructed in strict accordance with the plans approved by the Board of Public Service; that from all suits for damages which may arise from their construction the City shall be held harmless; and that he and his successors or assigns shall comply faithfully with the terms and provisions of Sections 23.42.010—23.42.100, 23.42.120—23.42.260, 23.44.150—23.44.190, Chapter 23.46, all inclusive, and of all other ordinances and laws in force at such time concerning conduits, ducts, manholes and other appurtenances and underground wires, tubes and cables conducting and transmitting electricity for the production of light, heat or power. Such bonds shall be renewed from time to time, whenever the Mayor may so order, as a condition precedent to the continued use of conduit privileges, and any refusal to renew a bond when so ordered shall constitute a forfeiture of all conduit rights. (1948 C., Ch. 50, § 46; 1994 C., § 23.42.100.)

23.42.110 Transmission of electricity for communication.

The Board of Public Service is authorized and directed to grant permits to construct, alter or repair conduits, ducts, manholes and other appurtenances under the surface of any street, alley or public place and to string therein wires, tubes and cables for conducting and transmitting electricity for communication under the terms and in accordance with the provisions

of Sections 23.42.010—23.42.090, 23.42.110—23.42.230, all inclusive, to any person furnishing or using electricity for communication for public use, upon compliance by him with the terms and conditions of Sections 23.42.010—23.42.090, 23.42.110—23.42.230, all inclusive, and all other ordinances in force at such time; provided, that he file with the Register a good and sufficient penal bond in the sum of ten thousand dollars conditioned that the conduits, ducts, manholes and other appurtenances shall be constructed in strict accordance with the plan approved by the Board of Public Service; that from all suits for damages which may arise from their construction the City shall be held harmless; and that he and his successors or assigns shall comply faithfully with the terms and provisions of Sections 23.42.010—23.42.090, 23.42.110—23.42.260, 23.44.150—23.44.190, Chapters 23.46 and 23.48, all inclusive, and of all ordinances and laws in force at such time concerning conduits, ducts, manholes and other appurtenances and underground wires, tubes and cables conducting and transmitting electricity for communications. Such bonds shall be renewed from time to time, whenever the Mayor may so order, as a condition precedent to the continued use of conduit privileges, and any refusal to renew a bond when so ordered shall constitute a forfeiture of all conduit rights. (1948 C., Ch. 50, § 47; 1994 C., § 23.42.110.)

23.42.120 Penalty for no permit.

Any person who shall string or cause to be strung any wire, tube or cable above or beneath the surface of any street, alley or public place without a permit or permission shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than fifty dollars nor more than five hundred dollars. (1948 C., Ch. 50, § 48; 1994 C., § 23.42.120.)

23.42.130 City purchase of conduits.

The City reserves the right to purchase at any time after the expiration of fifteen years from September 8, 1896, all conduits or ducts duly constructed by any person under the following procedure:

Upon the passage of an ordinance authorizing the purchase of any or all conduits or ducts, the Mayor, Comptroller, President of the Board of Public Service, or a majority of them, may at any time give thirty days' notice in writing to any owner or occupant of such conduit or duct of intention to purchase the whole or any part thereof at a valuation to be placed thereon by three arbitrators, one to be chosen by the Mayor and to be named in such notice, one to be chosen by such owner or occupant and to be designated in writing to the Mayor within ten days after the service of such notice, and one to be chosen, on the twentieth day after the service of such notice, by the two so chosen, or, in the event of their failure or refusal so to choose, to be appointed within five days after such failure or refusal by the presiding judge of the St. Louis Circuit Court.

The three arbitrators shall meet at the Mayor's Office on the thirty-first day after the service of such notice, and, after duly qualifying, shall proceed without unnecessary delay to ascertain and determine the value of the conduit or duct or part thereof described in such notice and they, or a majority of them, shall sign an award specifying such valuation. One copy of this award shall be filed with the Register and one copy to be mailed to the owner or occupant of such conduit, duct or part thereof at his last known address in the City.

Each of the parties to such arbitration, immediately upon the making of the award, shall pay one-half of the arbitrator's fees, which shall not exceed fifty dollars a day for each arbitrator actually employed, and if not so paid, such amount may be sued for by such arbitrators, each for himself.

After the filing of such award the City shall, within ninety days, pay to such owner or occupant, or, if he refuses to receive this amount, into the Circuit Court to his use, the amount of such award and may thereupon take possession of such conduit, duct or part thereof, and shall become the owner thereof. All rights of the former owner or occupant thereto or therein shall immediately cease and desist. (1948 C., Ch. 50, § 49; 1994 C., § 23.42.130.)

23.42.140 Conduit—Maintenance.

All conduits, ducts, manholes and other appurtenances shall be maintained by the owners thereof without cost to the City and to the satisfaction of the Board of Public Service. Failing such maintenance, the Board may order any work done which it may deem necessary for the proper maintenance at the cost of the owners. Failure by the owner to pay such cost shall, in the case of any owner furnishing or using electricity for light, heat or power for the use of the public, constitute a breach of the bond required by Section 23.42.100 of this chapter and shall, in the case of any owner furnishing or using electricity for communication for use of the public, constitute a breach of the bond required by

Section 23.42.110 of this chapter. (1948 C., Ch. 50, § 50; 1994 C., § 23.42.140.)

23.42.150 Conduit—Construction—Changes.

The City through the Board of Public Service, shall have the right at all times to inspect, superintend and control the construction of conduits, ducts, manholes and other appurtenances, constructed hereunder and, from time to time, to order any reasonable necessary changes to be made either in the construction, material or manner of maintaining the same or in the location in the street, alley or public place. All such changes or alterations shall be made by the owner without expense to the City. Should he fail to comply with any order so directing him within the time prescribed therein, the Board may cause the changes or alterations to be made by the City, and the owner of the conduit, duct, manhole or other appurtenance so changed or altered shall, upon demand of the Comptroller, pay the cost thereof. Failure to make such payment shall constitute a breach of the bond of such owner and a forfeiture of all rights and privileges granted. (1948 C., Ch. 50, § 51; 1994 C., § 23.42.150.)

23.42.160 Street repair.

Whenever in the construction, alteration, repair or maintenance of any conduit, duct, manhole or other appurtenance, any portion of any street, alley or public place shall be torn up or disturbed by any person, it shall be his duty upon the completion of the work or on order of the Street Commissioner to restore immediately such street, alley or public place to its original condition without cost to the City. Any failure so to do shall entitle the Street Commissioner to make such restoration at the cost of the person owning or controlling such conduit and shall, in the case of any person furnishing or using electricity for light, heat or power for public use, constitute a breach of the bond required by Section 23.42.100 of this chapter and shall, in the case of any person furnishing or using electricity for communication for public use, constitute a breach of the bond required by Section 23.42.110 of this chapter. (1948 C., Ch. 50, § 52; 1994 C., § 23.42.160.)

23.42.170 Common trench.

Whenever the plans, as approved by the Board of Public Service, require two or more applicants for conduits to use a common trench, space or conduit in any portion of any street, alley or public place all such applicants shall carry on the work of construction in such portion as nearly as practicable at the same time and as directed by the Board, so as to disturb the street, alley or public place to the least degree possible. Any person refusing or failing so to do shall be deemed to have waived any right to any conduit privilege in such portion. (1948 C., Ch. 50, § 53; 1994 C., § 23.42.170.)

23.42.180 Time limit.

Any permit granted under the provisions of this chapter shall become void unless the work authorized by such permit is begun within sixty days after such permit is issued and is carried to completion continuously in good faith and within a reasonable time thereafter. (1948 C., Ch. 50, § 54; 1994 C., § 23.42.180.)

23.42.190 Applicability of Sections 23.42.010—23.42.230 to certain corporations.

Sections 23.42.010—23.42.230, both inclusive, of this chapter, shall not apply to any corporation existing in the City on September 8, 1896, and authorized to maintain its wires, tubes and cables along and upon the public streets thereof under, and in pursuance of, any contract then existing between such corporation and the City for the lighting of the streets with electricity unless such corporation shall have, upon the approval of Ordinance 18680, filed with the Register an acceptance thereof and a release and discharge of the City from its agreement and covenant in the contracts to pay any part of the cost or expense of placing wires, tubes and cables of such corporation underground and in conduits.

It is further provided that after January 1, 1900, such corporations shall not be released from payment of any gross receipts tax required by any ordinance, nor from compliance with all other terms and conditions of any other general ordinances pertaining to electric lighting corporations; but that, on the contrary, such corporations expressly agree after January 1, 1900, to be bound by all such ordinances now in force or hereafter adopted. (1948 C., Ch. 50, § 55; 1994 C., § 23.42.190.)

23.42.200 Acceptance of Sections 23.42.010—23.42.230 required.

No permit shall be granted to any person to construct underground conduits under Sections 23.42.010—23.42.230, both inclusive, of this chapter until he files with the Register an acceptance of all the terms, conditions and obligations of the above-mentioned sections. (1948 C., Ch. 50, § 56; 1994 C., § 23.42.200.)

23.42.210 Termination of rights.

The rights, privileges and powers of any person conferred or authorized hereby shall cease and determine and become null and void on April 15, 1940. (1948 C., Ch. 50, § 57; 1994 C., § 23.42.210.)

23.42.220 Prices for services.

Until April 15, 1940, the prices charged to customers for telephones, telephone service, electric light and power by person obtaining underground conduit privileges in the streets, alleys and public places within the City shall not, in any case, exceed the prices charged for a similar or corresponding use or service on January 1, 1896. (1948 C., Ch. 50, § 58; 1994 C., § 23.42.220.)

23.42.230 Leasing or subletting conduit space.

No person or his successors or assigns constructing conduits under this chapter shall have the right or privilege to lease or sublet space therein or to use them otherwise than for his own needs; provided, that this section shall not apply to the acquisition of such space by the City as provided for in Section 23.42.130 of this chapter. Any violation of this section shall be deemed a misdemeanor, and shall cause a forfeiture of all rights and privileges granted under these sections. (1948 C., Ch. 50, § 59; 1994 C., § 23.42.230.)

23.42.240 Overhead wire removal—Required.

All overhead wires, tubes and cables and the poles and supports outside the district described in Section 23.42.010 of this chapter shall be removed from above the surface of all streets and public places as provided for in this chapter. (1948 C., Ch. 50, § 60; 1994 C., § 23.42.240.)

23.42.250 Overhead wire removal—Yearly amount.

All overhead wires, tubes and cables and the poles and supports on streets and public places ordered cleared, except conductors placed inside of posts or brackets to connect lamps, signal boxes or telephones lawfully erected with underground conductors on the streets, and except electric street railway equipment on trolley poles, shall be removed from four miles of streets and public places during each year. (1948 C., Ch. 50, § 61; 1994 C., § 23.42.250.)

23.42.260 Overhead wire removal—Board of Public Service orders.

The Board of Public Service, on or before June 1, 1918, shall order all overhead wires, tubes, cables, poles and supports removed during the next ensuing five calendar years from twenty designated miles of streets and public places. The Board shall designate four miles thereof to be so cleared during each of such five calendar years, the year for clearing each such four miles to be prescribed; and, on or before June 1, 1918, prior to making such order, the Board shall hold a public hearing, first giving thirty days' notice by publication in the newspapers doing the City printing of the time of the hearing to determine from what streets and public places such wires, tubes and cables shall be removed during the ensuing fifth calendar year. The Board shall give all persons whose wires, tubes and cables will be affected by the order opportunity to be heard at such hearing. In times of war or other emergency, and upon written application to this Board, accompanied by an affidavit setting out the facts relied upon, and after a public hearing held upon thirty days' notice by publication in a newspaper doing the City printing of the time thereof, the Board may modify such order and defer in whole or in part the work to be performed thereunder, if in its judgment, the enforcement of such order would be unreasonable or would work an undue hardship upon the party affected. Such work as may be thus temporarily deferred shall be completed, and at such rate and at such times, but within a period not longer than three times the period of deferment, as the Board shall direct. (1948 C., Ch. 50, § 62; 1994 C., § 23.42.260.)

Chapter 23.44

ELECTRICAL APPARATUS

Sections:

23.44.010 Conditions for placing wires.
23.44.020 Placing and securing wires.
23.44.030 Application required.
23.44.040 Permit.
23.44.050 When wires may be placed on poles of other corporations.
23.44.060 Poles—In streets—Wire height.
23.44.070 Poles—In alleys—Wire Height.
23.44.080 Poles—Requirements.
23.44.090 Changes in pole location or wire height.
23.44.100 Excavations.
23.44.110 Approved disconnect devices.
23.44.120 Equipment approval.

23.44.130 Cutouts.
23.44.140 Dangerous wires.
23.44.150 Removal of overhead wires.
23.44.160 Overhead wires at intersections.
23.44.170 When overhead wires shall not be erected.
23.44.180 Right of City to string wires.
23.44.190 Improperly strung or maintained wires.
23.44.200 Electrical plants—Premises examination.
23.44.210 Electrical plants—Operator's duties—Tags.
23.44.220 Accidental contact between wires to be prevented.
23.44.230 Dead and uncared for wires.
23.44.240 Interfering with electrical apparatus or workmen.

23.44.010 Conditions for placing wires.

No wires, tubes or cables conveying electricity for the production of light, heat or power shall be placed along or across any street, alley or public place by any person not having, previous to the passage of Ordinance 16894, approved October 26, 1892, accepted and complied with Ordinance 12723, or unless duly authorized by the Board of Aldermen and then only as provided by this chapter. (1948 C., Ch. 50, § 23; 1960 C., § 580.010; 1994 C., § 23.44.010.)

RSMo:

RSMo 392.080 (2016) May construct lines on public roads—consent of city required

City Counselor Ops.: 7658, 8641

23.44.020 Placing and securing wires.

All wires, tubes or cables conveying electricity for the production of light, heat or power along or across any street, alley or public place in the City which are to be placed above the surface of the ground, shall be placed and secured as the Board of Public Service may prescribe. (1948 C., Ch. 50, § 24; 1960 C., § 580.020; 1994 C., § 23.44.020.)

City Counselor Ops.: 8641

23.44.030 Application required.

Any person duly authorized to do business in the City and desiring to place wires, tubes or cables along or across any of the streets, alleys or public places shall file, in the office of the Board of Public Service, an application therefor. This application shall state in detail the streets, alleys or public places which such wires, tubes or cables are to occupy and the manner in which they are to be secured or supported and insulated, together with a plat showing their route. (1948 C., Ch. 50, § 25; 1960 C., § 580.030; 1994 C., § 23.44.030.)

City Counselor Ops.: 8347, 8641

Cases:

A franchise to use the streets of a city for poles and wires carries with it an implied condition of the furnishing of such services, and the continued nonuse by the grantee of the franchise will forfeit his rights. *State v. Light & Development Co. of St. Louis*, 246 Mo. 618, 152 S.W. 67 (1912); *State v. West End Light & Power Co.*, 246 Mo. 653, 152 S.W. 76 (1912).

23.44.040 Permit.

The Board of Public Service is authorized, upon the filing of the application and plat required by Section 23.44.030, to grant a permit for the occupancy of the streets, alleys and public places with such restrictions, regulations and qualifications as it may prescribe.

This occupancy shall be under the supervision and to the satisfaction of the Department of Public Utilities. (1948 C., Ch. 50, § 26; 1960 C., § 580.040; 1994 C., § 23.44.040.)

City Counselor Ops.: 7657, 8347, 8641

23.44.050 When wires may be placed on poles of other corporations.

In case any person desires to place along or across any of the streets, alleys or public places such wires, tubes or cables and shall, with the application and plat required by Section 23.44.030 of this chapter, file in the office of the Board of Public Service the written consent of any telegraph or telephone corporation or any other electric light or power corporation, to the placing of such wires, tubes or cables upon the poles of the consenting corporation in the streets, alleys or public places named in such application, the Board is authorized to grant a permit for such occupancy of the poles of such consenting corporation, with such restrictions, regulations and qualifications as the Board may prescribe and under the supervision and to the satisfaction of the Department of Public Utilities. (1948 C., Ch. 50, § 27; 1960 C., § 580.050; 1994 C., § 23.44.050.)

City Counselor Ops.: 8641

23.44.060 Poles—In streets—Wire height.

When poles are erected on a street, they shall be erected whenever practicable on the sidewalk just inside

the curbstone, upon the lines dividing the abutting lots from each other, and so as not to obstruct the drainage of the street or damage or interfere with the curbstone, trees or private or public property.

Wires, tubes and cables hereafter shall be run on the poles not less than thirty feet above the grade of the street. (1948 C., Ch. 50, § 28; 1960 C., §§ 580.060, 580.070; 1994 C., § 23.44.060)

City Counselor Ops.: 8641

23.44.070 Poles—In alleys—Wire Height.

Whenever an alley is available for the erection of poles for the support of such wires, tubes or cables, the Board of Public Service will advertise for five days previous to a day set for hearing objections or arguments in favor of erecting the poles in such alley. If, after due consideration, the Board is of the opinion that the erecting of poles in such alley is practicable, they shall be erected therein instead of along the street named in the application. When erected in such alley they shall be erected next to the side line thereof and, when practicable, upon the lines dividing the abutting lots from each other so as not to obstruct the drainage of such alley or damage adjoining property.

Wires, tubes and cables shall be run on such poles not less than twenty-five feet above the grade of the alley. (1948 C., Ch. 50, § 29; 1960 C., §§ 580.080, 580.090; 1994 C., § 23.44.070.)

City Counselor Ops.: 8641

23.44.080 Poles—Requirements.

All poles shall be sound, at least five inches in diameter at the top, straight, shapely, of uniform size, neatly planed or shaved, thoroughly painted with two coats of lead and oil paint of such color as may be directed by the Board of Public Service, and equipped with iron steps commencing twelve feet from the ground and reaching to the crossarms. (1948 C., Ch. 50, § 30; 1960 C., § 580.100; 1994 C., § 23.44.080.)

City Counselor Ops.: 8641

23.44.090 Changes in pole location or wire height.

The right is reserved to the Board of Public Service to direct at any time, any reasonable change for the public convenience in the location of poles and in the height at which wires, tubes or cables shall run. Before any such change is made, at least five days' written notice shall be given to the person affected thereby, and reasonable opportunity shall be afforded such person or any citizen interested to be heard in regard to the proposed change. When such change shall have been ordered, the owner shall within five days thereafter begin to effect it and shall complete the same as soon as practicable, and upon failure so to do shall be deemed guilty of a misdemeanor. (1948 C., Ch. 50, § 31; 1960 C., § 580.110; 1994 C., § 23.44.090.)

City Counselor Ops.: 8641, 9983

23.44.100 Excavations.

Any person having made an excavation in any street, alley or public place for the purpose of placing wires, tubes or cables in such street shall replace the removed material in such manner as may be prescribed by ordinance or by the Board of Public Service and to the satisfaction of the Street Commissioner. (1948 C., Ch. 50, § 32; 1960 C., § 580.120; 1994 C., § 23.44.100.)

City Counselor Ops.: 8641

Cases:

> Where a telephone company's negligence in placing a pole in a city street caused injury to a pedestrian, telephone company was primarily liable, even without the company's bond to hold the city harmless. *Kinloch Telephone Co. v. City of St. Louis,* 268 Mo. 485, 188 S.W. 182 (1916).

23.44.110 Approved disconnect devices.

It shall be the duty of every person operating or maintaining conductors for electricity to provide the most approved device to make it an easy task for his or the City's employees to disconnect the conductor, or any part of it, from the source of energy by the simple operation of using a handle or pulling a cord, rendering such conductor free from any electrical pressure tending to produce a flow of electricity from one part to another or from it to the ground. This device shall be placed at or near the point where conductors enter a building. All such devices shall be subject to the approval of the Board of Public Service. (1948 C., Ch. 50, § 33; 1960 C., § 580.130; 1994 C., § 23.44.110.)

City Counselor Ops.: 8641

23.44.120 Equipment approval.

The size of conductors, distance between supporters, and nature and quality of insulating materials to be used shall in all cases be submitted to and be subject to the approval of the Board of Public Service. (1948 C., Ch. 50, § 34; 1960 C., § 580.140; 1994 C., § 23.44.120.)

City Counselor Ops.: 8641

23.44.130 Cutouts.

It shall be the duty of every person supplying, using or maintaining conductors for electricity to pro-

vide cutouts and such other devices as may be necessary automatically to cut off electrical communication of any part of the conductors from the source of energy when the current exceeds a certain fraction of the capacity of the conductor protected, such fraction to be determined by the Board of Public Service. (1948 C., Ch. 50, § 35; 1960 C., § 580.150; 1994 C., § 23.44.130.)

City Counselor Ops.: 8641

23.44.140 Dangerous wires.

Any wire, tube, cable or conductor or any machine, lamp or apparatus through which an electric current may pass or the influence of electricity be manifested by its various phenomena shall be deemed dangerous when any manifestation tends to delay or intimidate the Fire Department, when, through accident, its insulation be impaired or its capacity overtaxed, or when, through carelessness or otherwise, it comes in contact with any wire or electrical apparatus used in giving an alarm to the Fire or Police Department, injuring or impairing the proper working of such device. (1948 C., Ch. 50, § 36; 1960 C., § 580.160; 1994 C., § 23.44.140.)

City Counselor Ops.: 8641

23.44.150 Removal of overhead wires.

Upon the failure of any person to comply with the order of the Board of Public Service, the Board is empowered and required to remove or cause to be removed such overhead wires, tubes or cables and the poles or supports. (1948 C., Ch. 50, § 63; 1960 C., § 580.170; 1994 C., § 23.44.150.)

City Counselor Ops.: 8641

23.44.160 Overhead wires at intersections.

Nothing contained in this chapter shall be construed as prohibiting at intersecting streets, alleys and public places the crossing of wires, tubes and cables over streets and public places ordered cleared by the Board of Public Service; provided, that no poles or supports shall be placed within the limits of the latter streets and public places. (1948 C., Ch. 50, § 64; 1960 C., § 580.180; 1994 C., § 23.44.160.)

City Counselor Ops.: 8641

23.44.170 When overhead wires shall not be erected.

From and after the expiration of the year fixed by the order of the Board of Public Service, it shall be unlawful to string, place, construct or maintain any wires, tubes or cables or any poles or supports therefor, except as otherwise provided in this chapter, above the surface of any street or public place designated in such order. (1948 C., Ch. 50, § 65; 1960 C., § 580.190; 1994 C., § 23.44.170.)

City Counselor Ops.: 8641

23.44.180 Right of City to string wires.

The City shall have the same right to string, maintain and conduct its telephone and telegraph wires in, upon and along the supports or other means provided or constructed to take the place of the poles and supports removed, that it had so to do on the latter. (1948 C., Ch. 50, § 66; 1960 C., § 580.200; 1994 C., § 23.44.180.)

City Counselor Ops.: 8641

23.44.190 Improperly strung or maintained wires.

The Board of Public Service is granted the power, whenever it is informed or understands that any wires, tubes or cables are being, have been, or are about to be strung, constructed or maintained to such number or extent as unreasonably to obstruct the street across which, or alley along which they are conducted or so as to threaten injury to life or property, to give five days' notice to the person responsible for such stringing, construction or maintenance that the Board will, upon a day to be fixed in such notice, take up and consider the question of whether or not the removal of such wires, tubes or cables, or a portion thereof, shall be ordered by it. At such hearing the person shall have the right to be heard in person or by counsel. Should the Board find that these wires, tubes or cables are being, have been, or are about to be strung or constructed to such number or extent as unreasonably to obstruct the street across which, or alley along which, they are conducted or so as to threaten injury to life or property, the Board, by its order entered of record, shall require the removal of them and shall further fix a time within which they or any portion thereof shall be removed by the person responsible for their stringing, construction or maintenance. No overhead wires, tubes or cables shall be ordered removed from poles and supports by the Board under the provisions of this section unless the removal of all overhead wires, tubes and cables shall by the same order be required. (1948 C., Ch. 50, § 67; 1960 C., § 580.210; 1994 C., § 23.44.190.) City Counselor Ops.: 8347, 8641

23.44.200 Electrical plants—Premises examination.

It shall be the duty of every person operating or controlling a plant for the production of electricity or

occupying premises on which electrical apparatus or conductors may be placed to admit the Director of Public Utilities or his inspectors, and to assist in making an examination of the premises. (1948 C., Ch. 55, § 66; 1960 C., § 580.220; 1994 C., § 23.44.200.)

23.44.210 Electrical plants—Operator's duties—Tags.

It shall be the duty of every person operating a plant for the production or consumption of electrical energy or maintaining conductors for its transmission to employ competent men. The names of employees shall be furnished to the Director of Public Utilities and recorded in his office as their authorized agents, one to be in charge of such plant at all times while in operation who shall execute promptly all orders issued by the Director of Public Utilities or by the Chief of the Fire Department which may, in their opinion, prevent accident or injury to life or property. Each person operating such plant shall keep his wires or conductors that pass over the street, alley or public place or over or through any building so marked that the owner of such may be ascertained by inspection. The character of the mark shall be determined by the Director of Public Utilities, and a record of all marks shall be kept in his office. If these marks become illegible, the wires or conductors shall be deemed abandoned, and it shall be the duty of the Director of Public Utilities to cause them to be retagged, repaired or removed. (1948 C., Ch. 55, § 67; 1960 C., § 580.230; 1994 C., § 23.44.210.)

23.44.220 Accidental contact between wires to be prevented.

It shall be the duty of every lineman or person employed to inspect, repair or erect wires or conductors for the purpose of transmitting electrical energy in the City to take every precaution possible that the space between the wires or conductors erected by them and all other wires or electrical apparatus shall be sufficient to prevent accidental contact. (1948 C., Ch. 55, § 68; 1960 C., § 580.240; 1994 C., § 23.44.220.)

23.44.230 Dead and uncared for wires.

The Director of Public Utilities shall serve written notice to any person owning or operating any electrical plant which maintains dead or uncared for wires over the streets and public places of the City to remove such wires. The Director shall allow five days for the removal of the wires described in such notice before employees of the Director shall remove them, unless such wires are a nuisance or an obstruction to a public place or highway or a menace to life or property, in which case the Director shall order the wires removed immediately. (1948 C., Ch. 55, § 69; 1960 C., § 580.250; 1994 C., § 23.44.230.)

23.44.240 Interfering with electrical apparatus or workmen.

No person shall interfere with, disarrange or break any of the wires, tubes, cables, lamps, lamp globes or other apparatus located on any street, alley or public place or prevent agents or employees of the owner thereof or inspectors of the Department of Public Utilities from performing properly their respective duties. (1948 C., Ch. 55, § 70; 1960 C., § 580.260; 1994 C., § 23.44.240.)

Chapter 23.46

MANHOLES AND SERVICE BOXES

City Counselor Ops.: 8641

Sections:

23.46.010 Guarding open manholes and service boxes.

23.46.020 Removal of manhole covers—Certificate of authority required.

23.46.030 Employees.

23.46.040 Certificate of authority—Cancellation.

23.46.050 Cancellation of certificate disqualifies.

23.46.060 Police Department to enforce chapter.

23.46.010 Guarding open manholes and service boxes.

It shall be the duty of any officer or employee of a wire-using company or person duly authorized and registered as such to take necessary precaution and see that an open manhole or service box is guarded and a red flag signal displayed by day and a red light signal displayed by night at the opening until the cover is restored to its place. Any officer of any wire-using company or employee who shall fail to observe any or all of the requirements of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than ten dollars nor more than five hundred dollars. (1948 C., Ch. 50, § 73; 1960 C., § 581.010; 1994 C., § 23.46.010.)

23.46.020 Removal of manhole covers—Certificate of authority required.

Any person who shall remove the cover or lid of any manhole or service box for electric or other wires without having a certificate of authority from the Department of Public Utilities shall be deemed guilty of a misdemeanor. (1948 C., Ch. 50, § 74; 1960 C., § 581.020; 1994 C., § 23.46.020.)

23.46.030 Employees.

All persons having underground conduits shall register the employees whom they wish to be recognized as authorized to open the manholes and service boxes for the purpose of making repairs or inspection of electric wires. The registration shall be kept by the Department of Public Utilities, which shall issue certificates of authority upon the written request of the employer, subject to such rules and regulations as the Board of Public Service may prescribe. This certificate shall be good for three months, unless the employee is sooner discharged or is found to be irresponsible and untrustworthy by the Department of Public Utilities. (1948 C., Ch. 50, § 75; 1960 C., § 581.030; 1994 C., § 23.46.030.)

23.46.040 Certificate of authority—Cancellation.

Any person who shall be registered and has a certificate of authority to open manholes and service boxes for electric wires shall be deemed irresponsible and untrustworthy should it be found that he in any way interfered with the wires or cables owned by any other company than the one employing him and which may be in a manhole or service box in which he is working or should he be discharged by the company upon whose request the certificate was issued and his certificate shall be cancelled. (1948 C., Ch. 50, § 76; 1960 C., § 581.040; 1994 C., § 23.46.040.)

23.46.050 Cancellation of certificate disqualifies.

Any person whose certificate of authority is cancelled shall be treated as an unauthorized person. (1948 C., Ch. 50, § 77; 1994 C., § 23.46.050.)

23.46.060 Police Department to enforce chapter.

It is the duty of the Department to see that the provisions of this chapter are enforced by arresting and prosecuting any person disturbing a cover or lid of a manhole or service box for electric wires without the proper certificate of authority as defined in this chapter. (1948 C., Ch. 50, § 78; 1960 C., § 581.050; 1994 C., § 23.46.060.)

Chapter 23.48

UNDERGROUND CONDUITS

City Counselor Ops.: 8641, 8915

Cases:

Power company, by acceptance of terms prescribed by ordinance, obtained authority to erect poles and string overhead wires in district outside of the restricted underground district. *Frolichstein v. Cupples Station Light, Heat & Power Co.,* 201 Mo. App. 162, 210 S.W. 90 (1919).

Sections:

23.48.010 Permit—Application.
23.48.020 Board to notify interested persons of proposed conduits.
23.48.030 Regulations.
23.48.040 Free use of duct for police and fire communication.
23.48.050 Terms defined.

23.48.010 Permit—Application.

Whenever any person affected by this chapter shall elect, or shall find it necessary in order to comply with the order of the Board, to place in underground conduits, wires, tubes or cables which have been ordered removed as provided for in Section 23.44.190, he shall notify the Board of Public Service to that effect and shall file with the Board an application for a permit to construct underground conduits, manholes and appurtenances for this purpose. The application shall state in detail the street or public place in which the proposed conduits, manholes and appurtenances are to be constructed and be accompanied by a plat showing the number and size of the ducts in such proposed conduit and the route thereof. This proposed conduit shall be subject to the approval of the Board. (1948 C., Ch. 50, § 68; 1960 C., § 582.010; 1994 C., § 23.48.010.)

23.48.020 Board to notify interested persons of proposed conduits.

Upon receipt of an application and a plat as provided in Section 23.48.010, the Board of Public Service shall immediately notify, in writing, each person whose wires, tubes and cables have been ordered removed, that it has received such application and that for a period of fifteen days it will continue to receive similar applications for the construction of conduits in the street or public place named in the notice from all persons who may elect or may find it necessary to place in underground conduits their wires, tubes and cables which have been ordered removed as provided by this title. At

the expiration of this period, the Board shall consider the application and shall, if it approves it, issue permits in accordance therewith. (1948 C., Ch. 50, § 69; 1960 C., § 582.020; 1994 C., § 23.48.020.)

23.48.030 Regulations.

The work of constructing and installing conduits, manholes and appurtenances shall conform to such regulations as may be prescribed by the Board and shall be done under the supervision and to the satisfaction of the Department of Public Utilities. (1948 C., Ch. 50, § 70; 1960 C., § 582.030; 1994 C., § 23.48.030.)

Cases:

Consent by "municipal authorities" required by statute for the laying of electrical conductors means the legislative authorities acting by ordinance. *Holland Realty & Power Co. v. City of St. Louis,* 282 Mo. 180, 221 S.W. 51 (1920).

23.48.040 Free use of duct for police and fire communication.

Every person constructing conduits, manholes and appurtenances as provided for in this chapter shall lay in each line of conduit one duct for the exclusive use by the City for the police and fire alarm telegraph and telephone system owned and operated by it. The location of this duct shall be designated in the permit. The duct so reserved for the use of the City shall be laid, constructed, and the use thereof permitted free of cost to the City. (1948 C., Ch. 50, § 71; 1960 C., § 582.040; 1994 C., § 23.48.040.)

23.48.050 Terms defined.

The terms "streets" and "public places" as used in this chapter shall not be construed as including alleys. Nothing contained in this chapter is intended, nor shall be construed, as granting a franchise. (1948 C., Ch. 50, § 72; 1960 C., § 582.050; 1994 C., § 23.48.050.)

Chapter 23.50

FIRE ALARM WIRES

City Counselor Ops.: 8641

Sections:

23.50.010 Authority to maintain.

23.50.020 Bond.

23.50.030 Poles—Tax.

23.50.010 Authority to maintain.

Permission and authority are granted to any person, upon the terms and conditions stated in this chapter, to string, maintain and operate overhead wires, communicating alarms automatically to the Fire Department or indicating the working of automatic sprinklers in buildings. (1948 C., Ch. 50, § 20; 1960 C., § 583.010; 1994 C., § 23.50.010.)

23.50.020 Bond.

Before any wire provided for in Section 23.50.010 is strung, the person stringing such wire shall file with the Register a good and sufficient penal bond in the sum of ten thousand dollars.

The bond shall be conditioned as follows:

A. All regulations shall be complied with in all the work contemplated being done;

B. A permit for the stringing of such wire shall be applied for and obtained from the Board of Public Service before the work is commenced;

C. Such wire shall be used for no other purpose;

D. The written consent of the owner of any property over which the wire is strung shall be obtained and filed with such application for a permit. (1948 C. Ch 50, § 21; 1960 C., § 583.020; 1994 C., § 23.50.020.)

23.50.030 Poles—Tax.

Nothing in this chapter shall authorize persons to set poles in any street, alley or public place. The City shall have the right, at any time, to tax such persons for the wire strung under the authority of this chapter and to alter, amend or repeal this chapter. (1948 C., Ch. 50, § 22; 1960 C., § 583.030; 1994 C., § 23.50.030.)

Chapter 23.52

TELEPHONE AND TELEGRAPH COMPANIES

RSMo:

RSMo Ch. 392 (2016) Telephone and telegraph companies

City Counselor Ops.: 8641

McQuillin:

34.11 Telegraph and telephone companies

Sections:

23.52.010 Board of Public Service.

23.52.020 Poles and other fixtures to be erected in accordance with this chapter.

23.52.030 Use of one crossarm by City.

23.52.040 Acceptance of use of crossarm.

23.52.050 Permit required.

23.52.060 Changes.

23.52.070 Poles—In streets—Wire height.

23.52.080 Poles—In alleys—Wire height.

23.52.090 Telephone booths.
23.52.100 Quality and equipment of poles.
23.52.110 Deposit for restoration of streets.
23.52.120 When wires may be placed on poles of other corporations.
23.52.130 Other modes of conducting wires.
23.52.140 Compensation for use of streets.
23.52.150 Use of wires must be for legal purposes.
23.52.160 Illegally used wires—Removal.
23.52.170 Illegally used wires—Penalty.
23.52.180 Wires strung without permit.
23.52.190 Enforcement.
23.52.200 Rates and charges.

23.52.010 Board of Public Service.

All wires, tubes or cables conveying electricity for telegraph and telephone purposes along or across any street. alley or public place in the City, which are to be placed above the surface of the ground, shall be placed and secured as the Board of Public Service may prescribe. (1948 C., Ch. 50, § 1; 1960 C., § 584.010; 1994 C., § 23.52.010.)

23.52.020 Poles and other fixtures to be erected in accordance with this chapter.

Any telegraph or telephone corporation is authorized to erect its poles, pins, anchors, abutments, overhead wires, tubes, cables and other fixtures along and across any of the streets, alleys and public places of the City as provided for in this chapter. (1948 C., Ch. 50, § 2; 1960 C., § 584.020; 1994 C., § 23.52.020.)

RSMo:

RSMo 392.090 (2016) Mode of construction may be directed, by whom

McQuillin:

34.77 Poles and wires

23.52.030 Use of one crossarm by City.

Any corporation erecting poles under the provisions of this chapter shall, before obtaining a permit therefor from the Board of Public Service, file an agreement with the Register, permitting the City to occupy and use, free of charge, space for one crossarm on any pole now or hereafter erected.

This space shall be for the exclusive use by the City for the police and fire alarm telegraph and telephone system owned and operated by it. Nothing in this section shall allow the City to lease, rent, assign or give such space. (1948 C., Ch. 50, § 3; 1960 C., § 584.030; 1994 C., § 23.52.030.)

Cases:

City ordinance requiring a rental of five dollars per telegraph pole held unreasonable. *City of St. Louis v. Western Union Tel. Co.*, 63 F. 69 (1894).

Ordinance accepted by telegraph company became a contract between the city and the company, and the subsequent imposition by the city of a certain charge per pole violated the contract. *City of St. Louis v. Western Union Tel. Co.*, 63 F. 69 (1894).

McQuillin:

24.588 Crossarms, regulation

23.52.040 Acceptance of use of crossarm.

Every telegraph or telephone corporation shall, within five days after commencing business, file with the Register its acceptance of Section 23.52.030 which relates to the use by the City of space for one crossarm on the poles. (1948 C., Ch. 50, § 4; 1960 C., § 584.040; 1994 C., § 23.52.040.)

23.52.050 Permit required.

Before any telegraph or telephone corporation shall erect poles upon any street, alley or public place, it shall apply in writing to, and receive from, the Board of Public Service a permit to do such work. Such company shall submit to the Board, for its approval, a plat showing the route of its proposed line, naming the street to be occupied, or, if an alley, the number of the block, and, as far as practicable, the location of each pole. All work of excavating, refilling and restoring the pavement shall be done under the supervision and direction and to the satisfaction of the Street Commissioner and such work shall be completed as speedily as possible. (1948 C., Ch. 50, § 5; 1960 C., § 584.050; 1994 C., § 23.52.050.)

City Counselor Ops.: 8347

Cases:

Under its general public power the city of St. Louis had the right to require compliance with reasonable regulations as a condition to using its streets for electric wires. *Missouri ex rel. Laclede Gas & Light Co. v. Murphy,* 170 U.S. 78 (1898).

23.52.060 Changes.

The right is reserved to the Board of Public Service to direct any reasonable change, at any time, for public convenience in the location of poles and the height at which wires, tubes or cables shall run. Before any such change may be made, at least five days' written notice

shall be given to the president or local officer in charge of the corporation to be affected thereby, and reasonable opportunity shall be afforded representatives of such corporation or any citizen interested to be heard thereon. When such change shall have been ordered such corporation shall, within five days thereafter, begin work to effect it and shall complete the same as soon as practicable, and upon failure so to do shall be guilty of a misdemeanor. (1948 C., Ch. 50, § 6; 1960 C., § 584.060; 1994 C., § 23.52.060.)

23.52.070 Poles—In streets—Wire height.

When poles are erected on a street, they shall be erected, whenever practicable, on the sidewalk just inside the curbstone upon the lines dividing the abutting lots from each other and so as not to obstruct the drainage of the street or damage or interfere with private property, curbstone trees or public property.

Wires, tubes and cables shall be run on the poles not less than twenty-two feet above the grade of the street. (1948 C., Ch. 50, § 7; 1960 C: §§ 584.070, 584.080; 1994 C., § 23.52.070.)

23.52.080 Poles—In alleys—Wire height.

Whenever, in the judgment of the Board of Public Service, the use of an alley for poles is practicable, they shall be erected therein next to the side line thereof and, when practicable, upon the lines dividing the abutting lots from each other and so as not to obstruct the draining of such alley or damage adjoining property. Wires, tubes and cables shall be run on such poles not less than eighteen feet above the grade of the alley, provided, that the Board of Public Service may at any time direct any reasonable change as is provided in Section 23.52.060 of this chapter. The cost of any such change shall be paid by the owner of such pole if such removal is for the benefit of the general public, but by the complainant if such removal is for his benefit or the abutting property owner. (1948 C., Ch. 50, § 8; 1960 C., § 584.090; 1994 C., § 23.52.080.)

23.52.090 Telephone booths.

Any telephone or telegraph corporation, which is either taxed by ordinance on its gross income for City purposes, or which pays the City per year based on its pole line and wires, tubes and cables is hereby authorized to place telephone booths, enclosures and pedestals in and adjacent to the public sidewalks of the City; provided, however, that such telephone booths, enclosures and pedestals shall be placed and maintained in such a location as not to affect the safety of pedestrian travel. The Board of Public Service shall have the right to direct any reasonable change in the location of any telephone booth, enclosure, or pedestal which is located in a public sidewalk area in the same manner as is prescribed by this chapter for changes in the location of poles and the height of wires, tubes or cables. (1960 C., § 584.101; 1994 C., § 23.52.090; Ord. No. 54742, § 1, 1983; Ord. No. 55378, § 1, 1969.)

23.52.100 Quality and equipment of poles.

All poles shall be sound, at least five inches in diameter at the top, straight, shapely, of uniform size, neatly planed or shaved, thoroughly painted with two coats of lead and oil paint of such colors as may be directed by the Board of Public Service, and equipped with iron steps commencing twelve feet above the ground and reaching to the crossarms. (1948 C., Ch. 50, § 9; 1960 C., § 584.100; 1994 C., § 23.52.100.)

23.52.110 Deposit for restoration of streets.

Every telegraph or telephone corporation shall keep, on deposit in the City Treasury, the sum of fifty dollars, subject to the order, and for the use, of the Street Commissioner in restoring any sidewalk, gutter, street or alley pavement displaced or injured in the erection, moving or removal of any pole by such corporation if it refuses or fails to make restoration or to make restoration to his satisfaction. Any corporation failing to make such deposit within five days after commencing business or to deposit further any sum expended for such restoration within five days after notice so to do has been sent to it by the Street Commissioner, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 50, § 10; 1960 C., § 584.110; 1994 C., § 23.52.110.)

23.52.120 When wires may be placed on poles of other corporations.

In case any telegraph or telephone corporation, authorized by ordinance or by permit of the Board of Public Service, desires to place along or across any of the streets, alleys or public places of the City, wires, tubes or cables and with application and plat heretofore provided for, files with the Board of Public Service the written consent of any electric light or power corporation or any other telegraph or telephone corporation to the placing of such wires, tubes or cables upon the poles of such consenting corporation in the streets, alleys or public places named in such application, such Board is authorized to grant a permit for such occupancy of the

poles of such consenting corporation with such restrictions, regulations and qualifications as may be prescribed by the Board and under the supervision and to the satisfaction of the Department of Public Utilities. (1948 C., Ch. 50, § 11; 1960 C., § 584.120; 1994 C., § 23.52.120.)

23.52.130 Other modes of conducting wires.

Nothing contained in this chapter shall be construed so as to abate, limit or restrict the right of the City to prescribe any other mode of conducting such wires, tubes and cables over or under its thoroughfares. (1948 C., Ch. 50, § 12; 1960 C., § 584.130; 1994 C., § 23.52.130.)

23.52.140 Compensation for use of streets.

All telegraph and telephone corporations, not taxed by ordinance on their gross income for City purposes, shall pay to the City per year for the privilege of using the streets, alleys and public places thereof as follows: For pole lines and wires, tubes and cables thereon, the sum of two dollars for each and every three hundred feet of street, alley or public place along or across which they extend and the sum of ten cents for each and every housetop wire, tube and cable, including those permitted to remain overhead by virtue of Sections 23.42.010 and 23.42.020 and for each and every wire, tube or cable on poles of other corporations for each and every street, alley or public place it crosses or intersects. (1948 C., Ch. 50, § 13; 1960 C., § 584.140; 1994 C., § 23.52.140.)

Cases:

The City of St. Louis is authorized to charge in the nature of a reasonable rental for the use of property by a telegraph company for putting poles in the street. *St. Louis v. Western Union Telegraph Co.,* 148 U.S. 92 (1892), rehearing denied, 149 U.S. 465 (1893).

23.52.150 Use of wires must be for legal purposes.

No permit shall be issued for the stringing of wires for communication unless the applicant shall represent in writing that such wires shall not be used to connect to or with immoral places or places existing unlawfully, and shall not be used for any illegal purpose. (1948 C., Ch. 50, § 14; 1960 C., § 584.150(part); 1994 C., § 23.52.150.)

23.52.160 Illegally used wires—Removal.

Any permit shall be void if the representation prescribed in Section 23.52.150 is violated, and any wires strung under such permit shall be unlawful. It shall be the duty of the Department of Public Utilities to cut down and remove such wires from any street, alley or public place. Any person interfering with or preventing such cutting and removal shall be deemed guilty of a misdemeanor. (1948 C., Ch. 50, § 15; 1960 C., § 584.160; 1994 C., § 23.52.160.)

23.52.170 Illegally used wires—Penalty.

Any person stringing wires to places used for immoral purposes or existing unlawfully, or wires used for any illegal purpose, shall be deemed guilty of a misdemeanor. (1948 C., Ch. 50, § 16; 1960 C., § 584.150(part); 1994 C., § 23.52.170.)

23.52.180 Wires strung without permit.

Any person who shall string or cause to be strung any wire, tube, cable or electrical conductor for communication along or across any street, alley or public place without a permit or permission shall be deemed guilty of a misdemeanor, and each street or alley crossed shall constitute a separate offense. (1948 C., Ch. 50, § 17; 1960 C., § 584.170; 1994 C., § 23.52.180.)

23.52.190 Enforcement.

It shall be the duty of the Police Department to assist in the enforcement of the provisions of this chapter. (1948 C., Ch. 50, § 18; 1960 C., § 584.180; 1994 C., § 23.52.190.)

23.52.200 Rates and charges.

The City reserves the right to fix, at any time, the rates and charges for the use of telephones. (1948 C., Ch. 50, § 19; 1960 C., § 584.190; 1994 C., § 23.52.200.)

Chapter 23.54

GAS COMPANIES

City Counselor Ops.: 8641

Sections:

23.54.010 Connections.
23.54.020 Repair of street openings.
23.54.030 Stopcock box placement.

23.54.010 Connections.

All gas, sewer, water and like connections with property bordering on any street shall be made in advance of the reconstruction of the street, and thereafter no one shall be permitted to remove or disturb the pavement for the purpose of making any such connection unless permission is obtained from the Board of Public Service. Any person who shall violate the provi-

sions of this section shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not less than twenty-five dollars nor more than five hundred dollars. (1948 C., Ch. 50, § 79; 1960 C., § 271.010; 1994 C., § 23.54.010.)

23.54.020 Repair of street openings.

Where the gas light companies authorize or cause an opening to be made in any street or alley of the City for any purpose, it shall be the duty of such companies to repair the street or alley and place it in as good condition, in the opinion of the Street Commissioner, as it was before the excavation or opening was made in the street or alley. The repairs must be continued as circumstances may require for a period of one year after the excavation has been refilled. It shall be the duty of the Street Commissioner to cause any repairs which, in his opinion, are not complete to be completed, and the cost of such repair by the Street Commissioner shall be deducted from the payment due by the City for lighting the streets. (1948 C., Ch. 50, § 80; 1960 C., § 271.020; 1994 C., § 23.54.020.)

23.54.030 Stopcock box placement.

All gas stopcock boxes shall be located in the sidewalks within one foot of the curbstone, in front of the premises to be supplied, and shall come up even with the pavement. When stopcock boxes cannot be placed in the sidewalks on account of vaults, they shall be placed in the street, clear of the gutter paving, and within four feet of the curbstone.

All persons supplying gas for heating, illuminating or other purposes, shall place stopcocks and boxes on the main supply pipe leading into any building on the sidewalk in the manner provided for in the immediately preceding paragraph, so that the supply of gas can be shut off without entering the building or premises. Any person violating the provisions of this section and Section 23.54.020 shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined in a sum not less than fifty dollars nor more than five hundred dollars for each offense. (1948 C., Ch. 50, § 81; 1960 C., § 271.030; 1994 C., § 23.54.030.)

Chapter 23.56

RECONNECTION OF TERMINATED SERVICE

Sections:

23.56.010 Use of services—Reconnected—Prohibited when.

23.56.020 Penalty for violation.

23.56.010 Use of services—Reconnected—Prohibited when.

A. It is hereby declared to be unlawful and illegal for the owner or occupier of any premises whether the same is residential, commercial or industrial to use or attempt to use the services or product of any public utility without the prior consent and approval of said utility.

B. In the event a utility company terminates service to a residential, commercial or industrial premises it shall be unlawful for any owner or occupier of said affected premises to perform any act the result of which is to re-establish or reconnect the terminated utility service to the premises where the utility service has been shut down, cut off or terminated by the utility company. (1994 C., § 23.56.010; Ord. No. 61916, § 1, 1990.)

23.56.020 Penalty for violation.

Any person, firm or corporation who violates the provisions of Section 23.56.010 and is found guilty of said violation shall be fined not less than twenty-five dollars ($25.00) or more than five hundred dollars ($500.00) for each offense and a separate offense shall be deemed committed on each day during which a violation occurs or continues. (1994 C., § 23.56.020; Ord. No. 61916, § 2, 1990.)

Chapters 23.57—23.58

(RESERVED)

Chapter 23.59

SMALL WIRELESS FACILITIES

Sections:

23.59.010 Applicability.

23.59.020 Definitions.

23.59.030 General standards.

23.59.040 Permitting provisions.

23.59.050 Construction standards.

23.59.060 Indemnity, insurance, performance bond.

23.59.070 Miscellaneous provisions.

23.59.010 Applicability.

To the extent permitted by law, this chapter shall apply to all persons desiring to construct, operate, or

maintain small wireless facilities within the City. (Ord. No. 70892, § 1, 12-26-2018.)

23.59.020 Definitions.

A. Definitions and Usage—General. For the purposes of this chapter, the following terms, phrases, words, and abbreviations shall have the meanings given herein, unless otherwise expressly stated. When not inconsistent with the context, words used in the present tense include the future tense and vice versa, words in the plural number include the singular number and vice versa, and masculine gender includes the feminine gender and vice versa. The words "shall" and "will" are mandatory, and "may" is permissive. Unless otherwise expressly stated or contrary to the context, those terms, phrases, words, and abbreviations not defined herein shall be given the meaning set forth in RSMo 67.5110—67.5121, and if not defined therein, the City Code, and, if not defined therein, their common and ordinary meaning. For further convenience, the first letter of terms, phrases, words and abbreviations defined in this chapter have been capitalized, but an inadvertent failure to capitalize such letter shall not affect its meaning, nor shall the inadvertent capitalization of the first letter of a term, phrase, word, or abbreviation not defined herein affect the meaning thereof.

B. "Antenna," communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services.

C. "Applicable codes," include any City codes incorporating uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization or local amendments to such codes enacted to prevent physical property damage or reasonably foreseeable injury to persons.

D. "Applicant," any person who submits an application and is a wireless provider.

E. "Application," a request submitted by an applicant to the City for a permit to collocate small wireless facilities on a utility pole or wireless support structure, or to approve the installation, modification or replacement of a utility pole.

F. "City utility pole," means a utility pole, as defined below, owned, managed or operated by or on behalf of the City; except municipal electric utility distribution poles or facilities.

G. "Collocate" or "collocation," to install, mount, maintain, modify, operate, or replace small wireless facilities on or immediately adjacent to a wireless support structure or utility pole, provided that the small wireless facility antenna is located on the wireless support structure or utility pole.

H. "Communications facility," the set of equipment and network components, including wires, cables, and associated facilities used by a cable operator, as defined in 47 U.S.C. Section 522(5); a telecommunications carrier, as defined in 47 U.S.C. Section 153(51); a provider of information service, as defined in 47 U.S.C. Section 153(24); or a wireless services provider; to provide communications services, including cable service, as defined in 47 U.S.C. Section 522(6); telecommunications service, as defined in 47 U.S.C. Section 153(53); and information service, as defined in 47 U.S.C. Section 153(24); wireless communications service; or other one-way or two-way communications service.

I. "Communications service provider," a cable operator, as defined in 47 U.S.C. Section 522(5); a provider of information service, as defined in 47 U.S.C. Section 153(24); a telecommunications carrier, as defined in 47 U.S.C. Section 152(51); or a wireless provider.

J. "Decorative pole," a City utility pole that is specially designed and placed for aesthetic purposes.

K. "Fee," a one-time, nonrecurring charge.

L. "Historic district," a group of buildings, properties, or sites that are either listed in the National Register of Historic Places or formally determined eligible for listing by the Keeper of the National Register, the individual who has been delegated the authority by the federal agency to list properties and determine their eligibility for the National Register, in accordance with Section VI.D.1.A.i—v of the Nationwide Programmatic Agreement codified at 47 C.F.R., Part 1, Appendix C, or are otherwise located in a district made subject to special design standards adopted by City ordinance or under state law as of January 1, 2018, or subsequently enacted for new developments.

M. "Permit," a written authorization from a designated City official required by the City to deploy or collocate small wireless facilities in or outside the right-of way, or to install, replace, maintain or operate a utility pole inside the right-of way.

N. "Person," an individual, corporation, limited liability company, partnership, association, trust, or other entity or organization, including an authority.

O. "Rate," a recurring charge.

P. "Right-of-way," the area on, below, or above a public roadway, highway, street, sidewalk, alley, or sim-

ilar property used for public travel, but not including a federal interstate highway, railroad right-of-way or private easement.

Q. "Small wireless facility," a wireless facility that meets both of the following qualifications:

1. Each wireless provider's antenna could fit within an enclosure of no more than six cubic feet in volume; and

2. All other equipment associated with the wireless facility, whether ground or pole mounted, is cumulatively no more than twenty-eight cubic feet in volume, provided that no single piece of equipment on the utility pole shall exceed nine cubic feet in volume; and no single piece of ground-mounted equipment shall exceed fifteen cubic feet in volume, exclusive of equipment by an electric utility or municipal electric utility to power the small wireless facility.

The following types of associated ancillary equipment shall not be included in the calculation of equipment volume: electric meter, concealment elements, telecommunications demarcation box, grounding equipment, power transfer switch, cut-off switch, and vertical cable runs and related conduit for the connection of power and other services.

R. "Stealth," integrated as an architectural feature of a structure or that is designed to camouflage or conceal the presence of the telecommunications facility, wireless support structure, or antenna so that the purpose of the telecommunications facility, wireless support structure, or antenna is not readily apparent to a casual observer however, such term shall not include wireless support structures, electric transmission structures, or break-away poles owned by the state Highways and Transportation Commission.

S. "Technically feasible," by virtue of engineering or spectrum usage, the proposed placement for a small wireless facility or its design or site location can be implemented without a reduction in the functionality of the small wireless facility.

T. "Utility pole," a pole or similar structure that is or may be used in whole or in part by or for wireline communications, electric distribution, lighting, traffic control, signage, or a similar function, or for the collocation of small wireless facilities.

U. "Wireless facility," equipment at a fixed location that enables wireless communications between user equipment and a communications network, including equipment associated with wireless communications and radio transceivers, antennas, coaxial or fiber-optic cable, regular and backup power supplies and comparable equipment, regardless of technological configuration. The term includes small wireless facilities. The term does not include:

1. The structure or improvements on, under, or within which the equipment is collocated;

2. Coaxial or fiber-optic cable between wireless support structures or utility poles;

3. Coaxial or fiber-optic cable not directly associated with a particular small wireless facility; or

4. A wireline backhaul facility.

V. "Wireless infrastructure provider," any person, including a person authorized to provide telecommunications service in the state, that builds or installs wireless communication transmission equipment or wireless facilities but that is not a wireless services provider.

W. "Wireless provider," a wireless infrastructure provider or a wireless services provider.

X. "Wireless services," any services using licensed or unlicensed spectrum, including the use of WiFi, whether at a fixed location or mobile, provided to the public using wireless facilities.

Y. "Wireless services provider," a person who provides wireless services.

Z. "Wireless support structure," an existing structure, such as a monopole or tower, whether guyed or self-supporting, designed to support or capable of supporting wireless facilities; an existing or proposed billboard; an existing or proposed building; or other existing or proposed structure capable of supporting wireless facilities, other than a structure designed solely for the collocation of small wireless facilities. Such term shall not include a utility pole.

AA. "Wireline backhaul facility," a physical transmission path, all or part of which is within the right-of-way, used for the transport of communication data by wire from a wireless facility to a network. (Ord. No. 70892, § 2, 12-26-2018.)

23.59.030 General standards.

A. Neither the City, nor any person owning, managing, or controlling City utility poles, shall enter into an exclusive arrangement with any person for use or management of the right-of-way for the collocation of small wireless facilities or the installation, operation, marketing, modification, maintenance, management, or replacement of City utility poles within the right-of-way, or for the right to attach to such utility poles within the right-of-way.

B. The City, in applying the provisions of this chapter, will act in a competitively neutral manner with regard to all other users of the right-of-way.

C. Nothing in this chapter limits the ability of the City to require an applicant to obtain one or more permits of general applicability that do not apply exclusively to small wireless facilities in addition to the permit required by this chapter, in order to collocate a small wireless facility or install a new, modified, or replacement utility pole associated with a small wireless facility.

D. The City may require a permit under applicable codes, ordinances, or this chapter, with reasonable conditions, for work in a right-of-way that will involve excavation, affect traffic patterns, obstruct traffic in the right-of-way, or materially impede the use of a sidewalk.

E. A small wireless facility must comply with reasonable, objective, and cost-effective stealth concealment or safety requirements determined by the City, provided that stealth concealment requirements are published in advance by the Board of Public Service and are no more burdensome than those required as part of other telecommunications infrastructure deployments.

F. Reasonable, technically feasible, nondiscriminatory, and technologically neutral design and stealth concealment measures are required for small wireless facilities or utility poles.

G. Wireless providers, upon adequate notice and at the facility owner's own expense, shall relocate facilities as may be needed in the interest of public safety and convenience.

H. Except as otherwise provided in this chapter and applicable state and federal laws, in reviewing applications for small wireless facilities, wireless support structures and utility poles, the City will exercise zoning, land use, planning, and permitting authority within its territorial boundaries.

I. Nothing in this chapter shall be interpreted to impose any new requirements on cable providers for the provision of such service.

J. Small wireless facilities or utility poles constructed or operational before August 28, 2018, which were approved by the City by permit or agreement, may remain installed and be operated under the requirements of this chapter.

K. Only one small wireless facility shall be installed per utility pole; however, nothing in this chapter limits the number of wireless providers that may use a small wireless facility.

L. Authority preserved. Subject to the provisions of RSMo 67.5110 to 67.5121 and applicable federal law, and except for facilities excluded from evaluation for effects on historic properties under 47 C.F.R. Section 1.1307(a)(4) of the Federal Communications Commission rules, the City may require reasonable, technically feasible, nondiscriminatory and technologically neutral design or concealment measures in an historic district. Any such design or concealment measures shall not have the effect of prohibiting any provider's technology, nor shall any such measures be considered a part of the small wireless facility for purposes of the size restrictions in the definition of small wireless facility. (Ord. No. 70913, § 1, 2-14-2019; Ord. No. 70892, § 3, 12-26-2018.)

23.59.040 Permitting provisions.

A. *Permit Requirements—Inside the Right-of-Way.*

1. (a) Any person desiring to collocate small wireless facilities, or install, maintain, modify, operate, or replace utility poles along, across, upon, and under the right-of-way to allow for such collocation is not subject to zoning review or approval; however, the placement of a new utility pole or a modified utility pole (as such terms are defined herein) by a wireless provider or its contractor within a segment of the right-of-way adjacent to the front lot line (as such term is used in Title 26 of the Revised Code) of a parcel in the single-family "A" zoning district shall not be permitted unless the applicant provides substantial evidence of the applicant's network need for a small wireless facility at that pole location or the applicant demonstrates that a denial of the permit otherwise would violate state or federal law. For the purposes of this section, "new utility pole" means a utility pole proposed for a location where a utility pole was not previously located, and "modified utility pole" means a utility pole that is either a replacement of an existing utility pole or a modification of such utility pole where the replacement or modified pole has a different width, height, or material than the pole being replaced or modified.

(b) "Substantial evidence of the applicant's network need" is demonstrated when the permit applicant provides the network need certification and supporting technical documentation as described in this para-

graph. A network need certification is a signed certification by the wireless provider explaining how the denial of the proposed new utility pole or a modified utility pole at the proposed location will materially inhibit the filling of a coverage gap, densifying of a wireless network, introduction of new services, or the improvement of service capabilities for that wireless provider in that area, and that there are no other existing utility pole locations on nearby side streets outside of front lot lines or in nearby alleys that are technically feasible for these purposes. Additional cost to the wireless provider to use an alley location shall not, by itself, demonstrate that an alley location is not technically feasible. Supporting technical documentation shall provide factual information supporting the wireless provider's network need certification in a form that the Board of Public Service shall specify in advance by Board order or resolution. The supporting technical documentation shall include a map of the area and nearby pole locations considered by the applicant, along with a brief narrative explaining why that particular utility pole was requested. Any claim and evidence that a denial of a permit otherwise would violate state or federal law shall specify the legal and factual basis for such claim in the permit application.

(c) For any pole location within a segment of the right-of-way adjacent to the front lot line of a parcel in the single-family "A" zoning district that the Board of Public Service approves based on substantial evidence shown in a network need certification and supporting technical documentation, the Board of Public Service may require that the new utility pole or modified utility pole be placed on or near the intersection of common property lines and out of the direct line of sight of doors and windows of the residence located on the parcel adjoining such segment of the right-of-way.

(d) Residents of Zone "A" parcels that adjoin a segment of the right-of-way where an approved new utility pole or modified utility pole is permitted under this chapter shall be notified via door hanger of any excavation, or pole construction or replacement, no less than seven (7) days prior to the start of excavation or construction.

(e) The Alderperson who represents the ward in which the proposed small wireless facility will be installed shall receive advance notice of the installation of the small wireless facility via electronic mail from the applicant or the applicant's representative no less than seven (7) days prior to the start of construction.

2. Small wireless facilities and utility poles shall be installed and maintained so as not to obstruct or hinder the usual travel, including pedestrian travel, or public safety on the right-of-way or obstruct the legal use of the right-of-way by the City or other authorized right-of-way users. A new, replacement, or modified utility pole allowed under this chapter and installed in the right-of way shall not exceed the greater of ten (10) feet in height above the tallest existing utility pole in place as of January 1, 2019, located within five hundred (500) feet of the new utility pole in the same right-of-way or fifty (50) feet above ground level. New small wireless facilities in the right-of-way shall not extend more than ten (10) feet above an existing utility pole in place as of August 28, 2018, or for small wireless facilities on a new pole, above the height permitted for a new utility pole under this section.

3. A wireless provider shall be permitted to replace decorative poles when necessary to collocate a small wireless facility, but any replacement pole shall reasonably conform to the design aesthetics of the decorative pole or poles being replaced. The term "reasonably conform," as used herein, shall mean that the replacement pole shall be as nearly identical to the decorative pole replaced as is feasible. The Board of Public Service is authorized to determine if the replacement pole reasonably conforms.

4. The City may require replacement of a City utility pole on a nondiscriminatory basis for reasons of safety and reliability, including a demonstration that the collocation would make the City utility pole structurally unsound, and the replacement must comply with City utility pole standards and specifications in effect and published by the Board of Public Service, at the time the permit application is submitted.

5. On a nondiscriminatory basis, the City shall not permit more than one (1) small wireless facility per utility pole.

B. *Permit Requirements—Outside the Right-of-Way.*

1. The City will allow collocation of small wireless facilities on City wireless support structures and City utility poles that are located on City property outside the right-of-way to the same extent, if any, that it allows access to such structures for other commercial projects or uses. Any such collocations shall be subject to reasonable and nondiscriminatory rates, fees and terms as provided in an agreement between the City and the wireless provider, and not otherwise governed by this chapter.

2. The City shall not enter into an exclusive agreement between the City and a wireless provider concerning City utility poles or City wireless support structures that are located on City property outside the right-of-way, including stadiums and enclosed arenas, unless the agreement meets the following requirements:

a. The wireless provider provides service using a shared network of wireless facilities, and makes the shared network available for access by other wireless providers on reasonable and nondiscriminatory rates and terms that shall include use of the entire shared network as to itself, an affiliate, or other entity, or the wireless provider must allow other wireless providers to collocate small wireless facilities on nondiscriminatory rates and terms as to itself, an affiliate or any other entity.

C. *Permit Process for an Applicant Seeking to Collocate Small Wireless Facilities in the Right-of-Way or on City Wireless Support Structures outside the Right-of-Way, or to Install, Replace, Maintain, or Operate a Utility Pole Inside the Right-of-Way.*

1. An applicant seeking to collocate small wireless facilities in the right-of-way or on City wireless support structures outside the right-of-way, or to install, replace, maintain or operate a utility pole inside the right-of-way, must first submit an application for a permit to the Board of Public Service. The Board of Public Service shall design and make available to applicants a standard application form, consistent with the provisions of this chapter, which all applicants must use in order to accomplish the purposes of this chapter. Except for the requirements in Subsection C.2.b. below, an applicant shall not be required to provide more information to obtain a permit under this chapter than other communications service providers that are not wireless providers.

2. An application for a permit shall include the following as per requirements as may be established by the Board of Public Service:

a. Construction and engineering drawings as per Board of Public Service requirements;

b. An attestation that the small wireless facility complies with the volumetric limitations in the definition of small wireless facility;

c. Information on the height of any new, replacement or modified utility pole;

d. Applicable indemnity, insurance, performance bond information required in Section 23.59.060;

e. An applicant that is not a wireless services provider must provide evidence of agreements or plans demonstrating that the small wireless facilities will be operational for use by a wireless services provider within one year after the permit issuance date, unless the City and the applicant agree to extend this period or if delay is caused by lack of commercial power or communications transport facilities to the site and the applicant notifies the City thereof. An applicant that is a wireless services provider must provide this information by attestation.

f. Plans and detailed cost estimates for any make-ready work as needed.

i. The applicant shall be solely responsible for the cost of any make-ready work.

ii. The applicant must seek and approve any make-ready work cost estimates provided by the City and include the approved estimate in the permit application.

g. Each permit shall include projected commencement and termination dates, or, if such dates are unknown at the time the permit is issued, a provision requiring the permit holder to provide the Board of Public Service with reasonable advance notice of such dates once they are determined.

h. Pursuant to RSMo 67.5113(1), the City shall receive applications for, process, and issue such permits from wireless providers or their agents applying for a permit to collocate a small wireless facility subject to the following requirements:

i. An applicant shall not be required to perform services or provide goods unrelated to the permit, such as in-kind contributions to the City, including reserving fiber, conduit or pole space for the City;

ii. An applicant shall not be required to provide more information to obtain a permit than communications service providers that are not wireless providers, provided that an applicant shall include construction and engineering drawings and information demonstrating compliance with the criteria of this section and an attestation that the small wireless facility complies with applicable volumetric limitations;

iii. An applicant shall not be required to place small wireless facilities on any specific utility pole or category of poles or place multiple antenna systems on a single utility pole;

iv. There is no limit as to the placement of small wireless facilities by minimum horizontal separation distances;

v. An applicant shall comply with reasonable, objective, and cost-effective stealth concealment or safety requirements as provided herein;

vi. An applicant that is not a wireless provider shall provide evidence of agreements or plans demonstrating that the small wireless facilities will be operational for use by a wireless services provider within one (1) year after the permit issuance date, unless the City and the applicant agree to extend this period or if delay is caused by lack of commercial power or communications transport facilities to the site and the applicant notifies the City thereof. An applicant that is a wireless service provider shall provide the information required by this subdivision by attestation.

D. *Fees and Rates.* Each such application shall be accompanied by payment as designated in this chapter.

1. *General Provisions.*

a. This section does not limit the City's ability to recover specific removal costs from the attaching wireless provider for abandoned structures. The rates to collocate on City utility poles shall be nondiscriminatory regardless of the services provided by the collocating applicant.

b. The City shall not require a wireless provider to pay any rates, fees, or compensation to the City or other person other than what is expressly authorized by RSMo 67.5110 to 67.5131 (while in effect) for the collocation of a small wireless facility; for the use and occupancy of a right-of-way; or for the installation, maintenance, modification, operation, and replacement of utility poles in the right-of-way.

c. Any fees collected pursuant to this chapter will be used only to reimburse the City for its actual incurred costs and will not be used to generate revenue to the City above such costs.

d. The City may not require or accept in-kind services in lieu of any fee.

e. The rates to collocate on City utility poles shall be nondiscriminatory regardless of the services provided by the collocating applicant.

2. *Collocation Rate.* The rate for collocation of a small wireless facility to a City utility pole is one hundred fifty dollars ($150.00) per pole per year.

3. *Application Fee.*

a. The fee for an application for the collocation of a small wireless facility on an existing City utility pole is one hundred dollars ($100.00) per small wireless facility, not including permit fees required for any make-ready work.

b. An applicant filing a consolidated application shall pay one hundred dollars ($100.00) per small wireless facility included in the consolidated application.

c. The fee for an application for the installation, modification, or replacement of a utility pole and the collocation of an associated small wireless facility is five hundred dollars ($500.00) per pole not including the make-ready work associated with the installation, modification or replacement of a utility pole.

E. *Timing for Processing of an Application.*

1. Within fifteen (15) days of receiving an application, the City shall determine and notify the applicant in writing whether the application is complete. An application shall not be deemed received unless the application contains all required documentation as outlined and published by the Board of Public Service. If the actual documentation provided is inadequate or incomplete then an application is incomplete, and the City shall specifically identify the missing information in writing. The processing deadline in Subdivision 2 of this subsection is tolled from the time the City sends notice to the applicant and the applicant provides the required information or as agreed upon by the applicant and the City.

2. The City shall process and approve or deny an application for collocation of a small wireless facility within forty-five (45) days of receipt.

3. The City shall process and approve or deny an application for installation of a new, modified, or replacement utility pole associated with a small wireless facility within sixty (60) days of receipt.

4. An applicant may file a consolidated application and receive a single permit for the collocation of multiple small wireless facilities.

a. An application may include up to twenty (20) separate small wireless facilities, provided that they are for the same or materially same design of small wireless facility being collocated on the same or materially the same type of utility pole or wireless support structure, and geographically proximate. The application shall provide information sufficient to determine whether the applicant has met the requirements of this section. The City shall have discretion to determine whether the application meets the requirements of this section.

b. If the City receives individual applications for approval of more than fifty (50) small wireless facilities or consolidated applications for approval of more than seventy-five (75) small wireless facilities within a fourteen-day period, whether from a single applicant or

multiple applicants, the City may, upon its own request, obtain an automatic thirty-day extension for any additional collocation or replacement or installation application submitted during that fourteen-day period or in the fourteen-day period immediately following the prior fourteen-day period. The City will promptly communicate its request to each and any affected applicant.

c. The denial of one (1) or more small wireless facilities in a consolidated application shall not delay processing of any other small wireless facilities in the same batch or constitute the basis for denial of other small wireless facilities within the consolidated application or the application as a whole.

5. The City shall provide a good faith estimate for any make-ready work necessary to enable a City utility pole to support the requested collocation by a wireless provider, including pole replacement if necessary, within sixty (60) days after receipt of a complete application. With the exception of make-ready work for power, make-ready work, including any pole replacement, shall be completed within sixty (60) days of written acceptance of the good faith estimate and advance payment, if required, by the applicant.

6. An application that is not acted on within the specified time period is deemed approved.

7. For any application denied:

a. The City shall document the complete basis for a denial in writing, and send the documentation to the applicant on or before the day the City denies the application.

b. The City shall approve or deny the revised application within thirty (30) days. Any subsequent review shall be limited to the deficiencies cited in the denial.

8. The City will not institute, either expressly or de facto, a moratorium on filing, receiving, or processing applications or issuing permits or other approvals, if any, for the collocation of small wireless facilities or the installation, modification or replacement of utility poles to support small wireless facilities.

a. The City may institute and may impose a temporary moratorium on applications for small wireless facilities and the collocation thereof for no more than thirty (30) days in the event of a major and protracted staffing shortage that reduces the number of personnel necessary to receive, review, process, and approve or deny applications for the collocation of small wireless facilities by more than fifty (50) percent.

F. *Denial of an Application.* An application for a proposed collocation of a small wireless facility or installation, modification, or replacement of a utility pole otherwise meeting the requirements of this chapter will be denied if the action proposed in the application could reasonably be expected to:

1. Materially interfere with the safe operation of traffic control equipment or City-owned communications equipment;

2. Materially interfere with sight lines or clear zones for transportation, pedestrians, or non-motorized vehicles;

3. Materially interfere with compliance with the Americans With Disabilities Act, or similar federal or state standards regarding pedestrian access or movement;

4. Materially obstruct or hinder the usual travel or public safety on the right-of-way;

5. Materially obstruct the legal use of the right-of-way by the City, utility, or other third party;

6. Fail to comply with applicable codes, including nationally recognized engineering standards for utility poles or wireless support structures;

7. Fail to comply with the reasonably objective and documented aesthetics of a decorative pole and the applicant does not agree to pay to match the applicable decorative elements;

8. Fail to comply with reasonable and nondiscriminatory undergrounding requirements contained in City ordinances as of January 1, 2018, or subsequently enacted for new developments, that require all utility facilities in the area to be placed underground and prohibit the installation of new or the modification of existing utility poles in a right-of-way without prior approval, provided that such requirements include a waiver or other process of addressing requests to install such utility poles and do not prohibit the replacement or modification of existing utility poles consistent with applicable law for the provision of wireless services;

9. Any other reason not prohibited by applicable law or regulation.

G. *Approval of an Application.*

1. The City shall review each application for a permit and, upon determining that: (1) the applicant has submitted all necessary information; (2) there is no basis under Subsection F above to deny the application, and (3) the applicant has paid the appropriate fee, the City shall issue the permit.

2. If the City approves an application, the applicant is authorized to:

a. Undertake the installation or collocation;

b. Operate and maintain the small wireless facilities and any associated utility pole covered by the permit for a period of not less than ten (10) years, which shall be renewed for equivalent durations so long as they are in compliance with this chapter.

3. Installation or collocation for which a permit is granted under this chapter shall be completed within one (1) year after the permit issuance date unless the City and the applicant agree to extend this period, or the applicant notifies the City that the delay is caused by a lack of commercial power or communications transport facilities to the site.

4. The City may approve a permit subject to a reservation to reclaim space in the utility pole, when and if needed, to meet the utility pole owner's core utility purpose or a documented City plan projected at the time of the application.

H. *No Application Required.* No application is required for:

1. Routine maintenance on previously permitted small wireless facilities;

2. The replacement of small wireless facilities with small wireless facilities that are the same or smaller in size, weight, and height; or

3. The installation, placement, maintenance, operation, or replacement of micro wireless facilities that are strung on cables between utility poles in compliance with applicable codes.

4. The City must be provided with a description of any new equipment installed so that the City may maintain an accurate inventory of the small wireless facilities at a particular location.

(Ord. No. 71333, § 1, 4-19-2021; Ord. No. 70892, § 4, 12-26-2018.)

23.59.050 Construction standards.

A. The construction, operation, maintenance, and repair of small wireless facilities shall be in accordance with applicable codes and standards including, as applicable, other relevant City ordinances pertaining to construction, operation, maintenance, and repair inside or outside the rights-of-way.

B. All small wireless facilities shall be installed and located with due regard for minimizing interference with the public and with other users of a right-of-way, including the City.

C. An applicant shall not place small wireless facilities where they will damage or interfere with the use of operation of previously installed facilities or obstruct or hinder the various utilities serving the residents and businesses in the City of their use of any rights-of-way.

D. Any and all rights-of-way disturbed or damaged during the construction of small wireless facilities shall be promptly repaired or replaced by the applicant to its previous condition before the disturbance or damage.

E. Any wireless infrastructure provider, contractor or subcontractor must be properly licensed under laws of the State and all applicable local ordinances.

F. Each wireless infrastructure provider, contractor or subcontractor shall have the same obligations with respect to its work as wireless services provider would have hereunder and applicable laws if the work were performed by the wireless services provider. The wireless services provider shall be responsible for ensuring that the work of wireless infrastructure providers,

contractors or subcontractors is performed consistent with their permits and applicable law relating to the deployment of small wireless facilities and utility poles and shall be responsible for all acts or omissions of any wireless infrastructure provider, contractor or subcontractor, and shall be responsible for promptly correcting any acts or omissions by a wireless infrastructure provider, contractor or subcontractor. (Ord. No. 70892, § 5, 12-26-2018.)

23.59.060 Indemnity, insurance, performance bond.

A. *Indemnity.*

1. Wireless providers shall indemnify and hold the City, its officers and employees harmless against any damage or personal injury caused by the negligence of the wireless provider or its employees, agents, or contractors.

B. *Insurance.*

1. As part of the permit process, a wireless provider must provide proof of liability insurance coverage against any damage or personal injury caused by the negligence of the wireless provider or its employees, agents, or contractors. The wireless provider's liability insurance policy must name the City and its officers and employees as additional insureds.

a. In the alternative, a wireless provider must demonstrate that it has in effect a comparable self-insurance program.

C. *Performance Bond.*

1. As part of the permit process, a wireless provider must post a performance bond of $1,500.00 per small wireless facility or an amount not to exceed $75,000.00 across all small wireless facilities.

2. The purpose of the performance bond is to:

a. Provide for the removal of abandoned or improperly maintained small wireless facilities, including those that the City determines need to be removed to protect public health, safety, or welfare;

b. Restore the right-of-way in connection with the removal of small wireless facilities;

c. Recoup rates or fees that have not been paid by a wireless provider in over twelve (12) months, provided the wireless provider has had reasonable notice and an opportunity to cure.

3. Upon completion of the work associated with the small wireless facilities to the satisfaction of the Board of Public Service, the Board of Public Service shall eliminate the bond or reduce its amount after a time appropriate to determine whether the work performed was satisfactory, which shall be established by the Board of Public Service considering the nature of the work performed.

4. Recovery by the City of any amounts under the performance bond or otherwise does not limit an applicant's duty to indemnify the City in any way, nor shall such recovery relieve an applicant of its obligations under a permit or reduce the amounts owed to the City other than by the amounts recovered by the City under the performance bond, nor in any respect prevent the City from exercising any other right or remedy it may have.

a. *Exemption.* Applicants that have at least twenty-five million dollars ($25,000,000.00) in assets in the state and do not have a history of permitting noncompliance within the City's jurisdiction shall be exempt from the insurance and bonding requirements otherwise required by this section. The City may require an applicant to provide proof by affidavit that its assets meet or exceed this requirement at the time of filing the application. (Ord. No. 70892, § 6, 12-26-2018.)

23.59.070 Miscellaneous provisions.

A. *Compliance with Laws.* Each applicant shall comply with all applicable City ordinances, resolutions, rules and regulations heretofore and hereafter adopted or established.

B. *Franchises Not Superseded.* Nothing herein shall be deemed to relieve an applicant of the provisions of an existing franchise, license or other agreement or permit.

C. *Rights and Remedies.*

1. The exercise of one remedy under this chapter shall not foreclose use of another, nor shall the exercise of a remedy or the payment of damages or penalties relieve an applicant of its obligations to comply with its permits. Remedies may be used alone or in combination; in addition, the City may exercise any rights it has in law or in equity.

2. The City hereby reserves to itself the right to intervene in any suit, action or proceeding involving any provisions of this chapter.

3. No applicant shall be relieved of its obligation to comply with any of the provisions of this chapter by reason of any failure of the City to enforce prompt compliance.

4. Nothing in this chapter precludes the Board of Public Service from adopting reasonable rules with

respect to the removal of abandoned small wireless facilities, and the Board of Public Service is authorized to do the same.

D. *Incorporation by Reference.* Any permit granted pursuant to this chapter shall by implication include a provision that shall incorporate by reference this chapter into such permit as fully as if copied therein verbatim.

E. *Calculation of Time.* Unless otherwise indicated, when the performance or doing of any act, duty, matter, or payment is required under this chapter or any permit, and a period of time is prescribed and is fixed herein, the time shall be computed so as to exclude the first and include the last day of the prescribed or fixed period of time.

F. *Relocation of Facilities.* Whenever, by reason of changes in the grade or widening of a street or in the location or manner of constructing a water pipe, drainage channel, sewer, or other City-owned underground or above-ground structure, public safety or convenience it is deemed necessary by the City to move, alter, adapt or change the location of underground or above-ground facilities of a wireless provider, the wireless provider shall make the alterations or changes, on alternative right-of-way provided by the City, if available, as soon as practicable upon adequate notice in writing by the City without claim for reimbursement or damages against the City.

G. *Standards Applicable to City.* Any standards in this chapter relating to small wireless facilities shall be fully applicable to work performed by the City and its departments. (Ord. No. 70892, § 7, 12-26-2018.)

DIVISION IV. PUBLIC LIGHTING

Chapter 23.60

PUBLIC LIGHTING

Sections:

23.60.010 **Director of Public Utilities—Enforcement.**

23.60.020 **Director of Public Utilities—Lighting of public buildings.**

23.60.030 **Director of Public Utilities—Inspection of electrical apparatus premises.**

23.60.040 **Additional lighting—Payment.**

23.60.050 **Additional lighting—Repairs.**

23.60.060 **Additional lighting—Acceptance of chapter.**

23.60.070 **Department of Public Utilities to maintain municipal plants.**

23.60.010 Director of Public Utilities—Enforcement.

The Director of Public Utilities shall enforce all ordinance provisions in relation to the lighting of the streets, alleys and other public places and of the public buildings of the City with gas or electricity, and in relation to the construction and operation of all plants and distributing wires and equipment used for distributing gas or electricity for light, heat, power, telegraph or telephone purposes. (1948 C., Ch. 55, § 63; 1960 C., § 541.010; 1994 C., § 23.60.010.)

City Counselor Ops.: 8890

23.60.020 Director of Public Utilities—Lighting of public buildings.

The Director of Public Utilities shall have charge of all lamps, fixtures, pipes, cables, tubes, conductors and appurtenances used in lighting the public buildings of the City and shall install, alter and maintain the same.

The cost thereof, unless provided for by special appropriation, shall be paid from funds annually appropriated for lighting public buildings. (1948 C., Ch. 55, § 64; 1960 C., § 541.020; 1994 C., § 23.60.020.)

23.60.030 Director of Public Utilities—Inspection of electrical apparatus premises.

The Director of Public Utilities is authorized and directed to inspect all premises on which an apparatus for transforming energy of any kind into electrical energy or the reverse is located and premises where conductors for the transmission of electricity are placed for the purpose of ascertaining their condition and management. (1948 C., Ch. 55, § 65; 1960 C., § 541.030; 1994 C., § 23.60.030.)

23.60.040 Additional lighting—Payment.

Whenever any person shall apply to the Director of Public Utilities for additional lighting standards on a street, or for increased candle power, in excess of what the Director of Public Utilities is authorized to furnish in accordance with the general scheme of municipal lighting, and shall undertake to reimburse the City for any additional expenditure that it may incur by complying with such application, the Director of Public Utilities is authorized to establish as many additional

standards and to furnish additional and extra candle power as may be applied for; provided, that the person applying for additional standards or increased candle power shall pay annually, in advance, the cost of installing and maintaining such additional standards and of furnishing such additional candle power. The Director of Public Utilities is authorized to remove any and all such additional lighting standards and to reduce or shut off any additional and extra supply of candle power whenever there is a failure to pay in advance, within the time fixed by the Director of Public Utilities, either the cost of installation or the cost of maintenance, and all such additional lighting standards shall thereupon become the property of the City. (1948 C., Ch. 55, § 71; 1960 C., § 541.040; 1994 C., § 23.60.040.)

23.60.050 Additional lighting—Repairs.

Whenever any extra lighting standard that may have been installed in accordance with the provisions of Section 23.60.040 shall have been damaged, the Director of Public Utilities is authorized to repair such damage. The cost of repairing such damage shall be borne by the person upon whose application such extra lighting standard was originally installed. Upon the failure of such person to reimburse the City for the expense of repairing any such extra lighting standard within the time fixed by the Director of Public Utilities, such lighting standard shall become the property of the City and may be removed by the Director of Public Utilities. (1948 C., Ch. 55, § 72; 1960 C., § 541.050; 1994 C., § 23.60.050.)

23.60.060 Additional lighting—Acceptance of chapter.

Before the Director of Public Utilities shall furnish any additional lighting standards on a street, or increase candle power in accordance with the provisions of this chapter, the person applying therefor shall signify in writing its acceptance of the provisions of this chapter. (1948 C., Ch. 55, § 73; 1960 C., § 541.060; 1994 C., § 23.60.060.)

23.60.070 Department of Public Utilities to maintain municipal plants.

The Department of Public Utilities is authorized and directed to maintain all plants and necessary appurtenances owned and operated by the City for the purpose of generating, transmitting and distributing electric light, heat and power to buildings owned or occupied by the City. (1948 C., Ch. 55, § 74; 1960 C., § 541.070; 1994 C., § 23.60.070.)

Chapter 23.64

COMMUNICATIONS TRANSMISSION SYSTEMS

Sections:

23.64.010 Citation.
23.64.020 Definitions.
23.64.030 Purpose.
23.64.040 License requirement.
23.64.050 Application for license.
23.64.060 Service of notice.
23.64.070 No liability or warranty.
23.64.080 License conditions.
23.64.090 License charge.
23.64.100 License fees—Payment—Audit.
23.64.110 Agency powers and duties.
23.64.120 Bonds.
23.64.130 Indemnity—Insurance.
23.64.140 Minimum technical specifications.
23.64.150 Streets and pole attachment use.
23.64.160 Police power.
23.64.170 Transfers, assignments and subleases.
23.64.180 Retroactivity of provisions.

23.64.010 Citation.

This chapter shall be known as and may be cited as the "St. Louis City Communications Transmission Systems Ordinance" and shall be codified. (1994 C., § 23.64.010; Ord. No. 62233, § 1, 1991.)

23.64.020 Definitions.

As used herein the following terms have the following meanings unless the context clearly indicates otherwise:

A. "Agency" means the Communications Division, under the office of the President, Board of Public Service, or its successor agency.

B. "Applicant" means the person who applies, pursuant to Section 23.64.040, for a license for the erection, construction, reconstruction, operation, maintenance or use of a communications transmission system by such person in the City of St. Louis.

C. "Cable system" means a cable television system as presently defined in 47 U.S.C. Section 522(6) or as may be defined by subsequent federal legislation.

D. "City" means the City of St. Louis, Missouri, a municipal corporation.

E. "Communications transmission system" means a facility consisting of a set of closed transmission paths and associated signal generation, reception and control equipment that is designed and used for the transmission of video, voice or data signals, which facility occupies public streets, alleys or rights-of-way or other public places within the City, except for the following: cable television systems franchised by the City; telephone systems subject to regulations by the Public Service Commission of the State of Missouri and franchised by the City; telegraph systems franchised by the City; or other communications facilities are franchised by the City.

F. "FCC" means the Federal Communications Commission or any successor agency thereto.

G. "License" means the privilege granted by the City which authorizes a person to erect, construct, operate, use and maintain a communications transmission system that occupies the streets, public ways or public places within the City. Any license issued in accordance herewith shall be a nonexclusive license.

H. "Licensee" means a person who is issued a license or licenses in accordance with the provisions of this chapter for the erection, construction, reconstruction, operation, maintenance, and use of a communications transmission system in the City.

I. "License agreement" means a contract entered into in accordance with the provisions of this chapter between the City and a licensee that sets forth the terms and conditions under which the license will be exercised.

J. "Person" means any individual, corporation, partnership, association, joint venture or organization of any kind and the lawful trustee, successor, assignee, transferee or personal representative thereof.

K. "Permit" means the permission granted by the Board of Public Service or other City agency or department for excavation of streets, public rights-of-way, use of poles, bridges, etc., upon posting of construction bonds or insurance policies, which would be required under City Code or ordinances for any construction within the City.

L. "Public street" is the surface and space above and below any public street, avenue, highway, boulevard, concourse, driveway, bridge, tunnel, park, parkway, waterway, dock, bulkhead, wharf, pier, alley, right-of-way, public utility easement, and any other public ground or water within or belonging to the City.

M. "Transfer of a license" means any sale, lease, sublease, rental, hypothecation, conveyance, assignment or similar transaction whereby a financial or ownership interest in a license issued pursuant to the provisions of this chapter, or in a communications system for which a license has been issued pursuant to the provisions of this chapter, is transferred by the licensee to another person. The transfer or sale of stock in a corporation which possesses a license issued under the provisions of this chapter, which stock is listed on a stock exchange or which is available for purchase by the public through recognized stock brokers, shall not constitute a transfer of a license pursuant to this section. The transfer or sale of stock in a privately held corporation shall not constitute a transfer of a license pursuant to this section unless more than fifty percent (50%) of the total capital stock of such corporation is sold or transferred within a one-year period. (1994 C., § 23.64.020; Ord. No. 62233, § 2, 1991.)

23.64.030 Purpose.

A. The purpose of this chapter is:

1. To regulate the erection, construction, reconstruction, installation, operation, maintenance, and use of a communications transmission system, in, upon, along, across, above, over, under or in any manner connected with the public streets, alleys, rights-of-way or other public places within the corporate limits of the City, as now or in the future may exist; and

2. To provide the City with compensation for occupation and use of the City's rights-of-way by a communications transmission system; and

3. To provide the City compensation for the cost of regulation imposed by this chapter on communications transmission systems; and

4. To provide the City with underground conduit for municipal use.

B. The Board of Aldermen finds and declares that the most effective method to achieve the purposes of this chapter, consistent with applicable law and the Charter, with minimal administrative processes, is by a standard license agreement executed by the Board of Public Service, and administered by the Agency, on behalf of the City. (1994 C., § 23.64.030; Ord. No. 62233, § 3, 1991.)

23.64.040 License requirement.

No person shall construct, operate, use, replace, reconstruct or maintain a communications transmission system which occupies the streets, public ways and/or public places within the City unless such person has first entered into a license agreement with the Board of Public Service, as provided herein. Nor shall any person continue to operate a communications transmission system, which occupies the streets, public ways, and/or public places within the City, and which is in operation on the effective date of this chapter, unless such person has made an application to the Board of Public Service for a license, in a form substantially complying with this chapter, as provided herein, within ninety (90) days of the effective date of this chapter. Nor shall any person to whom a license has been issued hereunder make substantial modifications to an existing communications transmission system, including, but not limited to, adding new conduit or transmission lines to an existing system, without first entering into a new or amended license agreement with the Board of Public Service. (1994 C., § 23.64.040; Ord. No. 62233, § 4, 1991.)

Editor's Note:

Ord. 62233 was approved March 8, 1991.

23.64.050 Application for license.

A. The application for a license shall be on a form supplied by the Agency and include as a minimum the following information:

1. The name, address and telephone number of the applicant;

2. The legal status of the applicant;

3. The name, address and telephone number of a responsible person whom the City may notify or contact at any time concerning the communications transmission system;

4. An engineering site plan showing the proposed location of the communications transmission system, including any manholes or overhead poles, the size, type and proposed depth of any conduit or other enclosures, and the relationship of the system to all existing streets, sidewalks, poles, utilities, and other improvements within the public streets;

5. Minimum technical standards which the licensee proposes to follow in construction of the licensed system;

6. Diameter and projected length of the communication aerial or conduit;

7. Any additional information which the Agency may require, subject to the approval of the Board of Public Service.

B. If the information in an application is incomplete or if the proposed use is inconsistent with the requirements of this chapter, the application may be returned as unacceptable for filing.

C. If the information provided in an application is complete, and it appears that the applicant has satisfied the requirements of this chapter, the Agency shall supply a draft of the proposed license agreement to the Board and shall recommend to the Board of Public Service that the Board should approve execution of a license agreement with the applicant. If the Board of Public Service finds that the requirements of this chapter and the regulations promulgated hereunder have been complied with by the applicant, the Board of Public Service shall then approve execution of a license agreement with the applicant by the Agency. If the Board of Public Service finds that execution of the draft of the proposed license agreement provided to it by the Agency would not comply with the chapter and regulations promulgated thereunder, it shall have the authority to direct the Agency to amend the license agreement, so as to comply with the chapter and applicable regulations, prior to execution thereof. Upon approval of the license agreement by the Board of Public Service, the Agency is empowered to execute a license agreement, in substantially the form approved by the Board, with the applicant on behalf of the City. The license agreement will become effective upon its execution by the City and the applicant, payment by the applicant of the initial license fee, and satisfaction of the bond and insurance requirements contained in the license agreement.

D. In the event that during the course of the term of a license agreement the licensee desires to expand the communications transmission system facilities operated by it within the corporate limits of the City, to include additional facilities or additional locations, application shall be made for an amendment of the license agreement. The procedure followed for such an amendment shall be the same as that for the initial license. (1994 C., § 23.64.050; Ord. No. 62233, § 5, 1991.)

23.64.060 Service of notice.

All notices required to be given to the City under any provision of this chapter shall be deemed served when delivered by hand, or sent by certified United

States mail, return receipt requested, in writing to the Cable Communications Manager of the Agency, or to any person in charge of the Agency during normal business hours. (1994 C., § 23.64.060; Ord. No. 62233, § 6, 1991.)

23.64.070 No liability or warranty.

This chapter shall not be construed to create or hold the City responsible or liable for any damage to persons or property by reason of any inspection or reinspection authorized herein or failure to inspect or reinspect, nor shall the issuance of any license nor the approval or disapproval of any installation authorized herein constitute any representation, guarantee or warranty of any kind by, nor create any liability upon, the City or any official, agent or employee thereof. (1994 C., § 23.64.070; Ord. No. 62233, § 7, 1991.)

23.64.080 License conditions.

A. A license granted by the City pursuant to this chapter shall not become effective until a license agreement between the City and the licensee has been executed by both parties. The term of such a license agreement shall not exceed fifteen (15) years. It shall be renewable by the licensee upon its application and grant by the City, subject to the execution of a new license agreement.

B. Any license agreement issued shall incorporate by reference the requirements of this chapter, and the licensee shall agree therein to comply with the requirements of this chapter.

C. Pursuant to the provisions of this subsection, the City may revoke a license and cancel the underlying license agreement if the licensee violates the terms of that agreement or this chapter:

1. Whenever he has cause to believe that a licensee is in violation of the terms of its license agreement or this chapter, the Cable Communications Manager shall issue a notice of violation to the licensee. Said notice shall be served upon the licensee either by hand-delivering said notice to the licensee or by sending the notice, via regular United States mail, postage prepaid, to the address provided in the license agreement for service of notices on the licensee.

2. The licensee shall have thirty (30) days from the date of said notice to rectify or cure the violation. If the violation has not been rectified or cured after thirty (30) days from the date of the notice, then the Cable Communications Manager shall revoke the license and cancel the license agreement. However, if the Cable Communications Manager determines that the licensee is proceeding with due diligence to rectify or cure a violation he shall not be required to revoke the license and cancel the license agreement, even though thirty (30) days have passed since the date of the notice of violation, except that this sentence shall not apply where the violation for which the licensee is cited involves or is related to failure to pay license fees owed to the City under the license agreement or failure to pay taxes owed to the City.

3. A licensee may appeal a notice of violation to the Board of Public Service by filing a letter appealing from said notice with the Board within ten (10) days of the date on which said notice was issued. Said letter shall not be required to be in any particular form, but shall specify the grounds on which the licensee disputes the notice of violation. Filing of a letter of appeal within the above time limit shall stay all proceedings upon the notice of violation until the Board of Public Service has ruled on the appeal. The Board of Public Service shall then schedule a hearing for purposes of determining whether the licensee is in violation of either the license agreement between it and the City or this chapter. The Board shall provide a minimum ten (10) days' notice of the date and time of the hearing to both the licensee and the Cable Communications Manager. At the hearing, the licensee may be represented by counsel and shall be given the opportunity to present evidence and witnesses and to cross-examine witnesses presented by the Cable Communications Manager. The burden of proof at such a hearing shall be upon the Cable Communications Manager.

4. Where the Cable Communications Manager has revoked a license and canceled the underlying license agreement based upon his determination that a licensee has failed to rectify or cure a violation within thirty (30) days of the date on which the violation notice was issued, the licensee may appeal the determination of the Cable Communications Manager that the licensee has failed to rectify or cure the cited violation to the Board of Public Service by filing a letter of appeal with the Board within ten (10) days of the date on which the Cable Communications Manager revoked the license of the licensee. Said letter shall not be required to be in a particular form, but shall specify the grounds on which the licensee disputes the determination of the Cable Communications Manager that the licensee has failed to rectify or cure the violation in question. Filing of a letter of appeal shall stay revoca-

tion of the license, unless the Board of Public Service determines, upon application of the Cable Communications Manager, that the alleged violation presents a threat to public safety or damage to public or private property. The Board of Public Service shall then schedule a hearing for purposes of determining whether the licensee has rectified or cured the violation(s) in question. The Board shall provide a minimum of ten (10) days' notice of the date and time of the hearing to both the licensee and the Cable Communications Manager. At the hearing, the licensee may be represented by counsel and shall be given the opportunity to present evidence and witnesses and to cross-examine witnesses presented by the Cable Communications Manager. The burden of proof at such hearing shall be upon the licensee. It shall not be a defense in a hearing called pursuant to the provisions of this subparagraph that the violation(s) alleged in the notice sent to the licensee pursuant to the provisions of subdivision 1 of this subsection was not a violation of either this chapter or the license agreement between the City and the licensee.

D. Any license shall apply only to the facilities and locations identified in the license agreement.

E. Nothing in this chapter or in any license agreement shall be construed as a representation, promise or guarantee by the City that any permit or other authorization required under any City ordinance or regulation for the construction or installation of a communications transmission system shall be issued.

F. A licensee may terminate the license agreement only if it ceases to use the conduit and transmission lines licensed thereunder and either transfers such conduit and transmission lines to another licensee, in the manner contemplated by Section 23.64.170, or conveys such conduit and transmission lines to the City, without charge therefor.

G. The license agreement shall specify that the licensee shall provide and install in a common trench with the conduit of the licensee a municipal service conduit(s) if requested and specified by the Board of Public Service. Such request by the Board must be made either at the time it approves the license agreement or a minimum of thirty (30) days prior to licensee commencing construction, if such request is not made at the time the license agreement is approved. The Agency shall reduce subsequent license charges due under the license agreement by an amount equal to the additional charge to the licensee of the conduit, pull boxes, vaults, other materials and additional construction work, other than the cost of the trenching itself, incurred as a result of construction of the municipal service conduit. Prior to commencement of construction of municipal service conduit(s), a licensee shall provide the office of the President of the Board of Public Service with a copy of all contracts related to construction thereof. If the Board of Public Service finds that construction of a municipal service conduit would be too costly, it may cancel its request for construction of a municipal service conduit. In such case, the licensee shall immediately cancel all contracts for such conduit, and the licensee shall only be credited against subsequent license charges for such expenses as it has incurred related to construction of the municipal service conduit, or become obligated to expand thereon, prior to cancellation of the request for construction of such conduit. Upon completion of construction of a municipal service conduit, a licensee shall certify to the Agency the total costs incurred by it in constructing the municipal service conduit. In no event shall a licensee be entitled to credit against subsequent license charges, pursuant to the provisions of this subsection, in an amount in excess of one hundred ten percent (110%) of the costs, as specified in the contracts provided to the office of the President of the Board of Public Service prior to commencement of construction of the municipal service conduit, attributable to construction of the municipal service conduit. The Agency or Comptroller shall be entitled to audit the books of the licensee to determine whether expenses alleged to have arisen as a result of the construction of the municipal service conduit were actually expended thereon.

H. All license agreements entered into pursuant to the provisions of this chapter shall contain the following language:

Licensee shall never make any claim of any kind or character whatsoever against the City of St. Louis for damages that it may suffer by reason of the installation, construction, reconstruction, operation and/or maintenance of any public or private improvement, utility, or communication facility, whether presently in place or which may in the future be constructed or installed, including, but not limited to, any water and/or sanitary sewer mains and/or storm sewer facilities and whether such damage is due to flooding, infiltration, backflow and/or seepage caused from the failure of any installation, natural causes or from any other cause of whatsoever kind or nature, except for damages occasioned by the intentional conduct or gross negligence on the

part of the City, it being further expressly understood this limitation of liability does not apply to independent contractors of the City of St. Louis. (1994 C., § 23.64.080; Ord. No. 62233, § 8, 1991.)

23.64.090 License charge.

In consideration of the rights and privileges granted by this chapter, licensees shall pay the City an annual sum calculated as follows:

A. For the year beginning July 1, 1991:

1. The amount of one dollar fifty cents ($1.50) per linear foot for underground transmission lines or conduit of four (4) inches in diameter or less;

2. The amount of two dollars ($2.00) per linear foot for underground transmission lines or conduit of over four (4) inches in diameter but less than eight (8) inches in diameter;

3. The amount of three dollars ($3.00) per linear foot for underground transmission lines or conduit of eight (8) inches or more in diameter;

4. The amount of one dollar fifty cents ($1.50) per linear foot for each one inch in diameter or fraction thereof of aerial wire; licensees shall pay a minimum charge of fifty dollars ($50.00) per annum.

B. Commencing July 1, 1991, and annually thereafter, the license charge shall be calculated by multiplying the previous year's license fee by the percentage change from the previous year in the National Consumer Price Index (Index), published by the United States Department of Labor. In the event such Index ceases to be published, the City's Board of Estimate and Apportionment may select another measure of general price changes. By June 1, 1991, and each June 1 thereafter, the Agency shall notify each licensee of the revised license charges to be effective on the following July 1. Every license agreement shall reflect the schedule of charges specified herein and the annual adjustments thereto.

C. The above-specified charges shall apply to all conduit and transmission lines, whether owned or leased by the licensee.

D. Whenever a license agreement is executed on a date other than July 1, the initial annual fee shall be prorated for the remainder of the year ending June 30 and shall be payable upon approval of the license agreement by the City.

E. The charges specified herein shall be in addition to and exclusive of all general municipal taxes of whatever nature, including, but not limited to, ad valorem taxes, earnings taxes, and employment taxes. (1994 C., § 23.64.090; Ord. No. 62233, § 9, 1991.)

23.64.100 License fees—Payment—Audit.

A. The annual compensation for a license as provided for in Section 23.64.090 shall be payable annually on July 1 of each calendar year.

1. Each annual payment shall be by check payable to the City filed with the City's Comptroller.

2. Each payment shall be accompanied by a report from the licensee, in a form approved by the City, showing the basis for the computation.

B. The acceptance of any licensee payment by the City shall not be construed as an acknowledgement that the amount paid is the correct amount due, nor shall such acceptance of payment be construed as a release of any claim which the City may have for additional sums due and payable.

1. All fee payments and accompanying reports shall be subject to audit by the Comptroller and assessment or refund if the payment is found to be in error.

2. In the event that such audit results in an assessment by and an additional payment to the City, such additional payment shall be subject to interest at the rate of one and one-half percent (1½%) per month and penalties in the amount of one percent (1%) per month or any fraction of a month elapsed after the due date where the additional payment exceeds five percent (5%) of the amount paid by the licensee.

C. Failure of a licensee to pay the license charges within thirty (30) days of their due date shall subject the licensee to a ten percent (10%) penalty and interest charges of one and one-half percent (1½%) per month, or portion thereof, for each month payment is delinquent. Failure of a licensee to make the annual payment within ninety (90) days of its due date may subject the licensee to the revocation of its license and cancellation of its license agreement following thirty (30) days' notice from the City. In such event, the licensee shall be considered to have abandoned the conduit and transmission lines permitted under the license agreement, and said conduit and line shall become the property of the City.

D. Nothing in this chapter shall be construed to limit the liability of the licensee for all applicable federal, state and local taxes. (1994 C., § 23.64.100; Ord. No. 62233, § 10, 1991.)

23.64.110 Agency powers and duties.

The Agency shall have the following powers and duties:

A. Receive, review and recommend action on applications for licenses for any communications system and generally administer this chapter.

B. Receive and review all Board of Public Service permits for any communications transmission system.

C. Review and audit all reports and filings submitted by an applicant or licensee to the City pursuant to this chapter.

D. Submit recommended regulations regarding the construction, reconstruction, operation, maintenance, dismantling, or testing of any communications transmission systems licensed in accordance herewith to the Board of Public Service for consideration and promulgation.

E. Inspect facilities and construction and enforce regulations during construction or operation of a communications transmission system, including, but not limited to, the power to halt construction found to be out of compliance with this chapter, building codes, permit requirements and regulations promulgated in accordance herewith. (1994 C., § 23.64.110; Ord. No. 62233, § 11, 1991.)

23.64.120 Bonds.

A. The license agreement shall require the licensee to have in force at all times a performance bond in an amount specified in the license agreement as necessary to ensure the faithful performance by the licensee of its obligations under the license agreement. Such surety instruments must be provided by an entity qualified to do business in the State of Missouri and in a form approved by the City Counselor.

B. None of the provisions of this section nor any bond accepted by the City pursuant hereto, nor any damages recovered by the City thereunder, shall be construed to excuse the faithful performance by or limit the liability of the licensee under this chapter or any license agreement issued in accordance herewith or for damages either to the full amount of such bond or otherwise. (1994 C., § 23.64.120; Ord. No. 62233, § 12, 1991.)

23.64.130 Indemnity—Insurance.

A. The City shall not at any time be liable for any injury or damage occurring to any person or property from any cause whatsoever, including damages from the City's negligent omissions, if any, arising from the installation, use, operation or condition of the licensee's communications transmissions system.

B. The licensee shall indemnify, save and hold harmless and defend the City from all claims; liens; charges, including, but not limited to, libel, slander, invasion of privacy and unauthorized use of any trademark, trade name or service mark; demands; suits; actions; fines; penalties; losses; costs, including, but not limited to, reasonable legal fees and court costs; judgments; injuries; liabilities or damages, in law or equity, of any and every kind and nature whatsoever, including damages caused by or arising out of any act or negligent omission of the City, its officers, servants, agents, employees or contractors, or otherwise, arising out of or in any way connected with the installation, use, operation, maintenance or condition of the licensee's communications transmission system.

C. The license agreement shall specify the amount, type and coverage of insurance required and shall require that the City be named as an additional insured on insurance policies procured by a licensee to comply with the terms of the license agreement. The amount, type and coverage required shall be determined by the Board of Public Service on the recommendation of the Agency. In setting the amount, the Board and the Agency shall take into consideration the size and location of the communications system, the financial resources of the licensee, risk involved to the City and to the general public as well as other salient factors. But in no case will coverage be less than fifty thousand dollars ($50,000.00) per person and five hundred thousand dollars ($500,000.00) per incident for personal injury liability and fifty thousand dollars ($50,000.00) for property damage liability. Insurance required pursuant to this section shall be in addition to any bond or insurance required by any other City agency or department for issuance of permits necessary for construction and installation of a communication transmission line.

D. The policy of insurance to be procured by a licensee pursuant to this provision shall provide that the insurance shall not be cancelled or materially altered without thirty (30) days' written notice first being given to the agency. If the insurance is cancelled or materially altered the licensee shall provide a new policy with the same terms as required by the license agreement. The license agreement shall specify that the licensee shall maintain continuous uninterrupted coverage, in the amount specified therein, for the duration

of the period during which the license agreement is in effect. The licensee shall maintain on file with the agency a certificate of insurance certifying the coverage required above. The adequacy of the insurance shall be subject to approval by the City Counselor. Failure to maintain liability insurance shall be cause for immediate termination of the license agreement. (1994 C., § 23.64.130; Ord. No. 62233, § 13, 1991.)

23.64.140 Minimum technical specifications.

A. Licensees shall conform to the following minimum specifications:

1. The depth of underground conduit, measured from the top of the conduit to the surface of the ground, shall be a minimum depth in soil of forty-two (42) inches and at a ditch crossing, a minimum depth of sixty (60) inches.

2. Within any street right-of-way, with the exception of road crossings and driveways, a minimum four (4) inch PVC conduit, with minimum 2 innerducts, ¾ inch cable shall then be pulled through the conduit in place.

3. Under all road crossings and driveways a minimum four (4) inch black steel pipe will be installed by jacking or boring, maintaining a depth of forty-eight (48) inches below the surface of the road.

4. Trenching shall be promptly backfilled with earth and tamped with a mechanical tamper at six (6) inch lifts, so that the earth is restored to original grade to assure no hazard to vehicular, animal or pedestrian traffic. All open trenches will be properly guarded or barricaded to prevent damage or injury.

5. All cable, where practical, shall be located to cross the roadbed at approximately right angles thereto. No cable shall be placed in any culvert or within five (5) feet of the closed point of same.

6. In areas of potential erosion the "plug" method of erosion control shall be used.

7. The licensee shall use the "flagging/identification" system as recommended by the American Public Works Association.

8. All aerial cables and wire shall be installed parallel with existing telephone and electric utility wires.

9. Multiple aerial configurations shall be in parallel arrangement and bundled, in accordance with engineering and safety considerations.

10. All underground installations shall be in the appropriate size and type of conduit or other enclosures approved by the Agency.

B. However, notwithstanding the requirements of Subsection A of this section, the Board of Public Service shall have authority, upon recommendation of the Agency, to allow a licensee to conform to different technical specifications than those contained in said subsection, based upon considerations of location of the installation or upon developments in state-of-the-art methodology, new technologies or construction techniques. Whenever the Board of Public Service approves use of technical specifications which vary from the minimum technical specifications set forth in Subsection A of this section, the minimum technical specifications which the licensee must comply with shall be set forth in the license agreement.

C. The licensee shall install and maintain its wires, cables, fixtures, and other equipment in accordance with the current requirements of the National Electrical Safety Code promulgated by the National Bureau of Standards and the National Electrical Code of the National Board of Fire Underwriters and in such a manner that they will not interfere with any installations of the City or of a public utility service in the area of the City.

D. No person shall engage in construction, installation, or maintenance of private transmission systems or components thereof unless such person has first procured either a communications contractor's or electrical contractor's license from the City and unless such person is otherwise properly licensed to do business in the City. It shall be a violation for an owner or operator of a private transmission system to allow construction, installation or maintenance work to be performed on such system by a person other than a licensed communications or electrical contractor. Each day on which such work is performed on a private transmission system by a person other than a licensed communications or electrical contractor shall constitute a separate violation. (1994 C., § 23.64.140; Ord. No. 62233, § 14, 1991.)

23.64.150 Streets and pole attachment use.

A. Operations along streets, alleys, walkways, and sidewalks shall be kept clear of excavated material or other obstructions at all times. Barricades, warning signs and lights, and flagmen when necessary shall be provided by the contractor or the licensee. One-half of the traveled portion of the street must be open at all times.

B. Damage to banks, ditches, streets, roads, fences, lawns, shrubbery, drives and any other property caused from the equipment and installation of the communications system shall be immediately repaired to the satisfaction of the public authorities having jurisdiction over the property involved, at the sole cost of the licensee.

C. The licensee shall comply with all rules and regulations issued by the Board of Public Service governing the construction and installation of communications transmission systems. In addition:

1. Before commencing construction of its communications system in, above, over, under, across, through or in any way connected with the streets, public ways or public places of the City, the licensee shall first obtain any permits required for such construction by the applicable ordinances of the City or by regulations issued by any of the City's agencies or departments. Applications for permits related to construction of a communications system shall not be considered for approval by the Board of Public Service until after execution of a license agreement hereunder between the City and the applicant. The licensee agreement shall be a condition of application for any permits required for construction.

2. Upon obtaining such permits, the licensee shall give the Agency written notice within a reasonable time of proposed construction, but in no event shall such notice be given less than twenty-four (24) hours before commencement of construction. The notice required hereunder shall include a proposed schedule for work in the City's streets or other rights-of-way, measured in linear feet, occupied by licensee's system, and a map showing same.

3. Any person who submits a request for a permit in accordance herewith shall include therein proposed agreements for the use of existing utility poles and conduits, if applicable, with the owner(s) of such facilities to be used or affected by the construction of the proposed communications system.

4. It shall be a violation for any licensee or any other person to open or otherwise disturb the surface of any street, sidewalk, driveway, public place for any purpose whatsoever related to a communications transmission system without obtaining all permits required by the applicable ordinance of the City or by regulations promulgated by any of the City's departments or agencies. The City further reserves to itself all other remedies, legal or equitable, which are available to it should a licensee or other person fail to obtain all necessary permits prior to opening or otherwise disturbing the surface of any street, sidewalk, driveway, or public place for purpose whatsoever related to a communications transmission system.

D. Each licensee shall, at its own cost and expense, and in a manner approved by the City, replace and restore any such pavements, sidewalks, curbing, or other paved areas in as good a condition as before the work involving such disturbance was done and shall restore and replace any other property disturbed, damaged or in any way injured by or on account of its activities to as good as the condition such property was in immediately prior to the disturbance, damage or injury or reimburse its owner for the damage done.

E. Upon the failure of the licensee to properly repair and restore such property to its former condition within a reasonable time after construction, the City or a private property owner may make the repairs and submit a statement of costs to the licensee for reimbursement. Should a licensee fail to reimburse the City or a private owner within thirty (30) days of submission of such statement to the licensee, the City or a private owner may proceed against the bond provided for in Section 23.64.120.

F. The licensee shall, at its own cost and expense, protect, support, temporarily disconnect, relocate in the same street or other public place, or remove from such street or other public place, any of its property when required to do so by the City because of street or other public excavation, construction, repair, regrading, or grading; traffic conditions; installation of sewers, drains, water pipes, City-owned power or signal lines, tracks; vacation or relocation of streets or any other type of structure or improvement of a public agency, or any other type of improvement necessary for the public health, safety or welfare.

G. Nothing in this chapter or any permit issued in accordance herewith, shall be construed as authorizing the licensee to erect or install new poles or underground conduits in areas serviced by existing poles and conduits. Except that a licensee may install new conduit where existing conduit in the area is full or otherwise unavailable to the licensee. In such instance, the license agreement shall contain specifications for the manner in which the new conduit is to be installed. The licensee shall obtain all necessary permits from the relevant departments and agencies of the City before erecting any new poles or underground conduits where none

exist or where existing conduit is unavailable or full. Applications for such approval shall be made in the form prescribed by the City.

H. The licensee shall maintain all wires, conduits, cables and other real and personal property and facilities in good condition, order and repair, and in safe condition so as not to endanger human life or health or public or private property. If it is necessary for a licensee to open or otherwise obstruct a street to make repairs to its system, the licensee shall, in addition to procuring all permits required for such work under other ordinances or regulations of the City, notify the agency thereof.

I. The licensee shall keep accurate, complete and current maps and records of its system and facilities which occupy the streets, public ways and public places within the City and shall furnish as soon as they are available three (3) complete copies of such maps and records to the Agency. The licensee shall also furnish one copy of maps and records to the "one-call" system coordinating group in Missouri.

J. All installation shall be underground in those areas of the City where both telephone and electric utilities' facilities are underground at the time of the installation of the licensee's communications transmissions system. In areas where both telephone and electric utilities' facilities are above ground at the time of the installation of the licensee's communications system, the licensee may install its system above ground on existing utility poles only, upon the condition that at such time as those facilities are placed underground by the telephone and electric utility companies, the licensee shall likewise place its facilities underground at its sole cost and expense.

K. The licensee upon reasonable notice by the City shall temporarily or permanently remove, adjust, raise or lower its facilities within the right-of-way when the City determines that such action is needed for public use of the right-of-way, including, but not limited to, the passage of nonstandard vehicles.

L. The licensee shall obtain written permission of the owner, including the City, of any trees or other vegetation before it trims or prunes the same. (1994 C., § 23.64.150; Ord. No. 62233, § 15, 1991.)

23.64.160 Police power.

Nothing in this chapter or in any license agreement issued in accordance herewith shall be construed as an abrogation by the City of any of its police powers. (1994 C., § 23.64.160; Ord. No. 62233, § 16, 1991.)

23.64.170 Transfers, assignments and subleases.

A. A license issued pursuant hereto shall not be transferred without the prior written authorization of the Board of Public Service. For purposes of this section, a merger or consolidation shall be deemed a transfer or assignment.

B. Nothing in any approval of the Board of Public Service authorizing any transfer of any license issued in accordance herewith shall be construed to waive or release any rights of the City in and to the streets, public ways and public places of the City or as a release of any of the City's police powers.

C. Any transfer of a license approved by the City shall be conditioned upon the transferee's accepting all the terms and conditions of this chapter and execution of an amended license agreement naming the transferee as the licensee.

D. No licensee under this chapter shall have the right or privilege to lease or sublet pole or conduit space or to use them other than for the licensee's own needs; except that, notwithstanding the contrary provisions of Ordinance 29723, this limitation shall not apply to the use of such space by another entity which has executed a license agreement with the City for use of such space. (1994 C., § 23.64.170; Ord. No. 62233, § 17, 1991.)

23.64.180 Retroactivity of provisions.

A. This chapter shall apply to all communications transmission systems installed or under construction within the City on the effective date of this chapter.

B. Within ninety (90) days of the effective date hereof a person owning or controlling communication transmission system facilities subject to this chapter shall file an application for a license as specified in Section 23.64.050. This period of time may be extended for good cause by the Agency.

C. Failure of such a person to file an application within the time specified shall be a violation and shall also result in the immediate revocation of any existing permits issued by the City allowing such person to occupy any public street, alley, right-of-way and/or public places in relation to the use, operation or maintenance of a communications transmission system. Upon revocation of such permits for failure to file an application within the time specified, the City may order the prompt removal of such facilities and seek

other redress, both legal and equitable. (1994 C., § 23.64.180; Ord. No. 62233, § 19, 1991.)

Title 24

CULTURAL RESOURCES

Prior history: Ord. Nos. 61366, 60390, 59368, 59030, 57986, 57611, 56100, 54705, 53748: 1960 C. §§ 24.010—24.130, 895.010—895.080, 896.010—896.130, 897.010—897.080, 898.010—898.040; 1948 C. Ch. 2 §§ 110—113

Chapters:

24.08	**Preservation Board**
24.12	**General Provisions**
24.16	**Designation of Historic Districts and Landmarks**
24.20	**Historic Districts and Landmarks—Construction, Alteration and Demolition**
24.24	**Public Structures, Monuments and Fixtures**
24.28	**Appeals**
24.32	**Legislative Findings with Respect to Review of Certain Demolitions**
24.36	**Preservation Review Districts**
24.40	**Demolition Reviews**
24.44	**Reserved**
24.48	**Administration and Enforcement**

Chapter 24.04 REPEALS—PURPOSE—DEFINITIONS—EXEMPTIONS

Sections:

24.04.010	**Repeals.**
24.04.020	**Purpose.**
24.04.030	**Definitions.**
24.04.040	**Exemptions of certain public improvements and property.**

24.04.010 Repeals.

Ordinances 57986, except that part of Section One thereof which is presently codified as Sections 24.16.010 to 24.16.090, inclusive, and Section 24.16.110 of the Revised Code of the City of St. Louis, 1994, Annotated, 59368 and 60390 are repealed. Ordinance 63166 and that part of Section One of Ordinance 57986 which is presently codified as Sections 24.16.010 to 24.16.090, inclusive, and Section 24.16.110 of the Revised Code of the City of St. Louis, 1994, Annotated, are repealed effective January 1, 2000. (1994 C., § 24.04.010; Ord. No. 64925, § 15, 2000; Ord. No. 64689, § 1, 1999.)

24.04.020 Purpose.

The intent of this title is to promote the prosperity and general welfare of the public, including particularly the educational and cultural welfare, through:

A. The protection, enhancement, perpetuation and use of buildings, improvements, parks, sites and natural phenomena as have or may reasonably be expected to have historic or cultural value and significance to the nation, the state or the City;

B. The stabilization and improvement of the value of property and the equity held by citizens in their property by the enhancement of the beauty, convenience and amenity of neighborhoods, parks, streets, public buildings and monuments, and by the enhancement of civic design;

C. The increase of economic resources available for the conservation and rehabilitation of neighborhoods and for the abatement of blight by the encouragement and use of public financial assistance and tax benefits available for the reuse of buildings, neighborhoods and public facilities with primary emphasis on making said resources available to City residents, property owners who by virtue of limited income might otherwise be unable to maintain their property, property owners whose property is not producing a reasonable income, and potential investors in property located in the City;

D. The increase of commerce and prosperity by the protection of the value, convenience, and amenity of property and to promote the tourist trade and civic pride and wider public knowledge and appreciation of the heritage and history of St. Louis. (1994 C., § 24.04.020; Ord. No. 64689, § 2, 1999.)

24.04.030 Definitions.

As used in this title, the following terms have the following meanings:

"Agency Director" means the Director of Planning and Urban Design Agency established by Ordinance 64687 (B.B. 52CS).

"Applicant" means any person or entity filing an application for a permit required by this title for any action with respect to one or more structures.

"Comprehensive Plan" means a plan for the City adopted pursuant to RSMo 89.340, as amended, and Ordinance 64687 (B.B. 52CS) or prior ordinance.

"Contributing" means contributing to a possible historic district and important to design of block face and neighborhood.

"Cultural Resource" means a site or improvement that:

A. Has significant character or value as part of the development, heritage or cultural characteristics of the City, state or nation; or

B. Is the site of a significant historic event; or

C. Is the work of a master whose individual work has significantly influenced the development of the City, state or nation; or

D. Contains elements of design, detail, materials or craftsmanship which represent a significant innovation; or

E. Owing to its unique location or singular physical characteristic represents an established and familiar visual feature of a neighborhood, community or the City; or

F. Has yielded, or is likely to yield, according to the best available scholarship, archaeological artifacts important in prehistory or history; or

G. Is a work of art located in a public space.

"Cultural Resources Director" means the Cultural Resources Director of the Planning and Urban Design Agency established by Ordinance 64687 (B.B. 52CS).

"Design and construction standards" means a set or sets of guidelines and regulations, with illustrations where appropriate, which define(s) minimum standards for the alteration or construction of improvements with respect to the appearance of exterior architectural features, and which enumerate(s) particular features that are made subject to that standard.

"Exterior alteration" means any construction, repair, addition or elimination of one or more of the exterior architectural features of an improvement.

"Exterior architectural feature" means the site topography, landscaping, building setback or building line, and architectural arrangement of such portion of the exterior of any improvement as is open to public view from any street or highway, including, but not limited to, (1) the kind, color, and texture of the building material of such portion so open to view, (2) the type and design of all windows, doors, lights, signs, porches, walks, cornices, eaves and other fixtures appurtenant to such portion, (3) the location and treatment of any motor vehicle parking space appurtenant to such improvement and so open to view.

"High merit" means contributing as a major structure to an existing or potential City or national historic district; or deserving of consideration for single-site historic or landmark site designation.

"Historic district" means a geographic area that has a significant historical interest or value as part of the development, heritage or cultural characteristics of the City, state or nation, and that has been designated as an historic district pursuant to the provisions of this title or pursuant to prior ordinance.

"Improvement" means any building, structure, parking facility, street, highway, walk, fence, landscaped area, gate, wall, work of art or other object, the use of which requires a location on a parcel of land and which constitutes a physical betterment of, attachment to, or alteration of real property, or any part of such betterment, attachment or alteration.

"Landmark" means any natural site or improvement (including any park, cemetery, street or right-of-way) that has a significant historical interest or value as part of the development, heritage or cultural characteristics of the City, state or nation, and has been designated as a landmark pursuant to the provisions of this title or pursuant to prior ordinance.

"Landmark site" means a parcel of land, or any part thereof, on which is situated a landmark and any abutting parcel or part thereof used as and constituting a part of the premises on which a designated landmark is situated, and which has been designated as a landmark site pursuant to the provisions of this title or pursuant to prior ordinance.

"Merit" means contributing to an existing or potential City or national historic district or having a unique architectural style.

"National Register" means the Federal National Register of Historic Places.

"Office" means the Cultural Resources Office of the Planning and Urban Design Agency established by Ordinance 64687 (B.B. 52CS).

"Owner" means any person, corporation or other entity having such right or title to or interest in any land or improvement so as to be legally entitled, upon obtaining permits required by this title, to perform with respect to such land or improvement any construction, exterior or structural alteration, demolition or repair.

"Planning Commission" means the Planning Commission established by Ordinance 64687 (B.B. 52CS).

"Preservation Board" means the Preservation Board established by Section 24.08.010 of this title.

"Qualifying" means qualifying for listing on the National Register or for federal, state, local or private incentive programs for rehabilitation or adaptive reuse.

"Sound" means that visible portions of exterior walls and roofs appear capable of continuing to support their current loads for six months or more.

"Structure" means any building or improvement of any kind. (1994 C., § 24.04.030; Ord. No. 64689, § 3, 1999.)

24.04.040 Exemptions of certain public improvements and property.

The provisions of this title shall not apply to any improvement or property owned or controlled by the Board of Directors of the St. Louis Public Library, the Board of Education, the state or the United States government, or formerly owned or controlled by the former Art Museum Board of Control. Such improvements or property may be designated a landmark or included in a landmark site without need for preparing or filing a landmark preservation plan or landmark standards with respect thereto or may be included in an historic district without need for including such improvement or property in the historic district plan and historic district standards, but the designation or inclusion shall not subject such improvements or property to the procedural requirements or controls of this title. (1994 C., § 24.04.040; Ord. No. 64689, § 4, 1999.)

Chapter 24.08

PRESERVATION BOARD

Sections:

24.08.010 Preservation Board—Established—Membership—Continuation of prior commission.

24.08.020 Preservation Board—Organization, compensation and removal of members.

24.08.030 Preservation Board—Powers and duties.

24.08.040 Fees.

24.08.050 Execution of contracts and acceptance of gifts, grants or property.

24.08.010 Preservation Board—Established—Membership—Continuation of prior commission.

A. There is hereby established within the Planning and Urban Design Agency established by Ordinance 64687 (B.B. 52CS) a Preservation Board, which shall consist of eight voting members appointed by the Mayor, each of whom shall be a resident of the City and shall have demonstrated interest and ability in the preservation and enhancement of structures and neighborhoods. Of the eight members appointed by the Mayor, at least two shall be registered architects, one shall be a practicing art or architectural historian, one shall be a practicing landscape architect or planner with experience in urban or civic design, one shall be a licensed real estate broker, one shall be a registered engineer and one shall be a citizen member of the Planning Commission. Two members shall be initially appointed for a term of one year, two for terms of two years each, two for terms of three years each and two for terms of four years each. All members thereafter appointed shall be appointed for terms of four years. In addition to the above, the Chairman of the Public Safety Committee of the Board of Aldermen of the City shall be a voting member of said Preservation Board and shall constitute the ninth (9th) voting member of said Preservation Board, and the only voting member not appointed by the Mayor of the City. Whenever the Chairman of the Committee of Public Safety of the Board of Aldermen of the City of St. Louis is unable or unavailable to attend any meeting of the Preservation Board, he is hereby authorized, in his sole and absolute discretion to appoint some other member of his Committee to attend said meeting, which said designated member shall have for purpose of said meeting all of the power of authority of said Chairman.

B. The Preservation Board shall be the lawful successor to and, to the extent consistent herewith, assume the duties of the former Heritage and Urban Design Commission of the City. All previously enacted ordinances not hereby repealed referring to the "Heritage Commission" or "Heritage and Urban Design Commission" shall, upon the effective date of the ordinance codified in this title, be deemed to mean the Preservation Board, unless otherwise expressly provided by this title.

C. Until the earlier of August 30, 1999, or until four members of the Preservation Board shall have appointed and qualified, the members of the former Heritage and Urban Design Commission shall serve as the Preservation Board, and shall conclude matters pending before the Heritage and Urban Design Commission on the day before the effective date of the ordinance codified in this title consistent with Section

24.48.040. (1994 C., § 24.08.010; Ord. No. 64689, § 5, 1999.)

24.08.020 Preservation Board—Organization, compensation and removal of members.

A. The Preservation Board shall elect from its members a Chairman and Vice-Chairman who shall serve for the duration of the City's fiscal year.

B. The members shall serve on the Preservation Board without compensation.

C. Any member may be removed by the Mayor for reasons of incapacity, malfeasance, neglect of duty, conviction of a felony, or failure to attend three (3) successive regular meetings without cause. (1994 C., § 24.08.020; Ord. No. 64689, § 6, 1999.)

24.08.030 Preservation Board—Powers and duties.

A. The Preservation Board shall be responsible for establishing and articulating policy with respect to historic preservation in the City, and for establishing and articulating standards with respect to the minimum exterior appearance of improvements within historic districts, landmarks and landmark sites as provided in this title in such a manner as to enhance property in the City, encourage property maintenance and promote development consistent with the Comprehensive Plan.

B. The Preservation Board may review and recommend for approval to the Missouri Advisory Council on Historic Preservation all nominations of structures, districts or sites in the City of St. Louis to the National Register.

C. If necessary to prevent or delay the imminent destruction by demolition or deferred maintenance of a site or structure, or portions thereof, which is within or part of a designated landmark, landmark site or historic district, the Preservation Board may deny or delay demolition as provided in this title and may request that the Planning Commission recommend to the Board of Aldermen the passage of an ordinance for the appropriation of private property as provided for in Article XXI of the Charter of the City of St. Louis.

D. Subject to the written approval of the Planning Commission, the Preservation Board shall make and adopt, and may from time to time amend, rules and bylaws governing the conduct of its business and providing for the administration of this title.

E. The Preservation Board shall hold regular meetings and special meetings, as often as may be required for the conduct of its business, as provided by its rules.

F. The Preservation Board shall have such other duties, powers and responsibilities as are granted under this title or as may be otherwise or hereafter provided or granted to it. (1994 C., § 24.08.030; Ord. No. 68138, § 2, 10-31-2008; Ord. No. 64689, § 7, 1999.)

24.08.040 Fees.

The Preservation Board may assess fees to be collected by the Building Commissioner upon applications for permits where a determination of compliance with standards established under or pursuant to this title or review by the Preservation Board is required, provided that such fees shall not exceed one dollar ($1.00) per ten thousand dollars ($10,000.00) of estimated cost of the proposed construction or alteration and shall not in any event be assessed upon permit applications where the estimated cost of construction or alteration is less than ten thousand dollars ($10,000.00), nor shall such fees exceed a total of five thousand dollars ($5,000.00) with respect to any permit application. Such fees shall be in addition to any other fees that the Building Commissioner is authorized to assess under the building code or any other ordinance. Such fees shall be held in a fund, hereby created, for preservation of important sites and structures that would otherwise be lost through demolition or lack of maintenance. This fund shall be held by the Comptroller's Office in a special account and may be drawn upon only after the approval of the Preservation Board and the Board of Estimate and Apportionment. (1994 C., § 24.08.040; Ord. No. 64689, § 8, 1999.)

24.08.050 Execution of contracts and acceptance of gifts, grants or property.

A. The Agency Director with the approval of the Board of Estimate and Apportionment shall have the power to enter into contracts in furtherance of the purposes of this title, provided that with respect to any contract requiring the appropriation of money by the City, an appropriation has been made authorizing payment therefor. All such contracts shall be executed in the name of the City and shall be signed by the Agency Director and the Comptroller.

B. The Agency Director upon the recommendation of the Preservation Board is authorized to accept gifts, contributions and grants for the furtherance of the purposes of this title on behalf of the Preservation

Board and in the name of the City. Such gifts, contributions and grants shall be used solely for the purposes indicated, and if in the form of money, shall be deposited into a special account by the Comptroller. The Comptroller shall draw warrants on said account only for the purposes of carrying out the terms and conditions of the gift, contribution or grant. (1994 C., § 24.08.050; Ord. No. 64689, § 9, 1999.)

Chapter 24.12

GENERAL PROVISIONS

Sections:

24.12.010	**Existing historic districts and landmarks.**
24.12.020	**Maintenance of register of designations and public docket of heritage appeals.**
24.12.030	**Waiver of certain building and maintenance standards.**
24.12.040	**Amendment or removal of designations.**
24.12.050	**Permit granting for demolition.**
24.12.060	**Consideration of permit application.**

24.12.010 Existing historic districts and landmarks.

A. Neither this title, nor the repeal by the ordinance codified in this title of Ordinance 57986, shall be construed to invalidate, discontinue or detract from the designation of any historic district or landmark or landmark site made prior to the effective date of said ordinance pursuant to Ordinance 57986 or any other previous ordinance of the City.

B. All historic districts designated as such pursuant to Ordinance 57986 or any other previous ordinance of the City and existing within the City on the effective date of the ordinance codified in this title shall from such effective date be deemed historic districts under this title, and subject to the controls and provisions of this title. The development plan incorporated in the ordinance designating the particular historic district and the standards contained in or appended to such plan shall be deemed to be the historic district plan and historic district standards applicable to such historic district for purposes of reviewing applications for permits required under Sections 24.20.010 through 24.20.120 of this title for the construction, demolition or alteration of improvements within the historic district. Within four years from the effective date of said ordinance, the Preservation Board shall review the plan and standards applicable to each such historic district and shall recommend to the Planning Commission and the Board of Aldermen such revisions as may be necessary or convenient to bring such plan and standards into conformance with the provisions of this title, but such revisions shall not become effective until and unless approved by Planning Commission and by ordinance. The recommended revisions shall take into account changes in circumstances or conditions of or affecting the historic district, the intent of this title, and the significant features or characteristics of the historic district that were the basis of the original historic district designation.

C. All landmarks designated as such pursuant to Ordinance 57986 or any other previous ordinance of the City and existing within the City on the effective date of the ordinance codified in this title shall be from such effective date be deemed to be landmarks under this title and shall be subject to the controls and provisions of this title. Within two years from the effective date of this said ordinance, the Preservation Board shall prepare and recommend to the Planning Commission and the Board of Aldermen a landmark preservation plan and landmark standards in conformance with this title for each such landmark subject to the controls and provisions of this title. In preparing such plan and standards, the Preservation Board shall consider the advice and comments of the Board of Public Service, the owner(s) of record, and other interested parties. Such plan and standards shall not become effective until and unless approved by the Planning Commission and by ordinance. Until landmark standards have been approved for a particular landmark, all applications for permits pursuant to Sections 24.20.010 through 24.20.120 with respect to such landmark shall be automatically referred to the Cultural Resources Director for review by the Preservation Board or the Cultural Resources Director (as provided by the rules of the Preservation Board); in reviewing the application, the Preservation Board or Cultural Resources Director shall consider whether the proposed work would adversely affect the characteristics of the landmark which were the basis for its designation as a landmark, whether there have been changes in the circumstances or conditions in or affecting the landmark since its designation, and other relevant considerations, such as the availability of economically feasible alternatives to the pro-

posed work. (1994 C., § 24.12.010; Ord. No. 64689, § 10, 1999.)

24.12.020 Maintenance of register of designations and public docket of heritage appeals.

The Cultural Resources Office shall maintain for the City a register of all landmark, landmark site and historic district designations and shall periodically transmit an updated copy of such register to the Building Commissioner and to the Agency Director, together with a map or maps of the City showing the location and extent of all improvements, sites and historic districts so designated. The Preservation Board shall maintain for each ward a public docket of requests for appeals from staff decisions, which docket shall identify the nature and location of the proposed construction or alteration and the name and address of the applicant for permit and appellant. Such docket shall be prepared each month and shall be available for public inspection in the office of the Preservation Board. A copy of such docket shall be transmitted to the Building Commissioner and each member of the Preservation Board not less than ten (10) days prior to consideration by the Preservation Board of any appeal. (1994 C., § 24.12.020; Ord. No. 64689, § 11, 1999.)

24.12.030 Waiver of certain building and maintenance standards.

Insofar as they are applicable to a landmark, landmark site or improvement in an historic district, any provision of the building, housing maintenance and fire prevention codes of the City or of the minimum nonresidential standards law, may be varied or waived, on application, by the Building Commissioner or, with respect to the Fire Prevention Code, by the Fire Marshal, provided that the construction or alteration as contemplated will provide substantially equivalent safety and assurance of public health as would be otherwise required by such provisions. (1994 C., § 24.12.030; Ord. No. 64689, § 12, 1999.)

24.12.040 Amendment or removal of designations.

A. From time to time, an overriding public need or interest may be served by the removal or amendment of any landmark or landmark site or historic district designation or portion thereof. In such event, any interested citizen or owner of property within the historic district, landmark or landmark site or any interested public agency may file a petition with the Preservation Board requesting amendment or removal of specified sites or improvements from the register of designated sites and districts. Such petitions shall be made in such manner as the Preservation Board shall prescribe.

B. Upon receipt of such a petition for amendment or removal of designation, the Preservation Board shall have sixty (60) days to consider the petition, to solicit public comment and to ascertain the nature of the overriding public need or interest. In considering the petition, the Preservation Board may:

1. Recommend approval of the petition;

2. Recommend approval of the petition with such modifications or conditions as the Preservation Board shall deem appropriate;

3. Recommend disapproval of the petition.

If such a petition is recommended for approval, with or without conditions or modifications, then the Preservation Board shall cause to be prepared a bill providing for the desired amendments or for removal of sites or improvements from the register of designated landmarks and historic districts in accordance with the approved petition and shall transmit a copy thereof to the petitioner, the Mayor, the Planning Commission, and the Clerk of the Board of Aldermen, together with recommendations of the Preservation Board.

If the Preservation Board recommends disapproval of the petition, the Preservation Board shall state its reasons therefor and the alternatives to the proposed amendment or removal of sites or improvements from the register of designated landmarks and historic districts and shall forward a copy thereof to the petitioner, the Planning Commission, the Mayor and the Clerk of the Board of Aldermen.

C. After a bill for removal or amendment of a landmark, landmark site or historic district designation or portion thereof is introduced in the Board of Aldermen and assigned to the Board of Aldermen's appropriate standing committee, said bill shall not be voted on by the Board of Aldermen until a public hearing is held by the committee. Notice of the hearing shall be given by publication and placards in a manner substantially similar to that provided in Sections 24.16.110 and 24.16.210 of this title for original designations. Upon passage by the Board of Aldermen and approval by the Mayor of any bill amending a designation or removing sites or improvements from the register of landmarks or historic districts, the Clerk of the Board of Aldermen shall forthwith file a copy of the approved ordinance with the Recorder of Deeds, the Board of Aldermen, the Building Commissioner, and

the Planning and Urban Design Agency. (1994 C., § 24.12.040; Ord. No. 64689, § 13, 1999.)

24.12.050 Permit granting for demolition.

Except where immediate demolition is necessary in order to protect the public safety, the Building Commissioner shall give forty-five days' prior notice to the Cultural Resources Director of the Building Commissioner's intent to grant a permit for demolition of an improvement within an historic district, and if the Preservation Board or Cultural Resources Director notifies the Building Commissioner within such forty-five-day period that demolition of the improvement would violate the historic district standards or the historic district plan for the historic district in which the improvement is situated, the Building Commissioner shall deny the application for permit. Any person aggrieved by such denial may appeal such denial to the Preservation Board pursuant to Section 24.20.060 of this title.

Where immediate demolition is necessary in order to protect the public safety, the Building Commissioner shall immediately notify the Cultural Resources Director and the Chairman of the Preservation Board of his decision. (1994 C., § 24.12.050; Ord. No. 64689, § 14, 1999.)

24.12.060 Consideration of permit application.

If the proposed construction, alteration or demolition is not covered by any duly approved historic district standard for the historic district in which the improvement is situated, the application for permit shall be reviewed pursuant to Section 24.20.040 of this title. (1994 C., § 24.12.060; Ord. No. 64689, § 15, 1999.)

Chapter 24.16

DESIGNATION OF HISTORIC DISTRICTS AND LANDMARKS

Sections:

Part I. Designation of Historic Districts

24.16.010 Criteria for designation.

24.16.020 Generally—Historic district designation.

24.16.030 Petition filing requirements—Historic district designation.

24.16.040 Distribution and review of petition—Historic district designation.

24.16.050 Public hearing on petition—Historic district designation.

24.16.060 Notice of public hearing—Historic district designation.

24.16.070 Expression of views by interested parties—Historic district designation.

24.16.080 Determination—Historic district designation.

24.16.090 Preparation of Historic district designation bill upon approval of petition.

24.16.100 Procedure upon disapproval of petition—Historic district designation.

24.16.110 Historic district designation bill—Notice of pendency.

24.16.120 Historic district designation bill—Copy filing.

24.16.130 Revision of historic district standards.

Part II. Designation of Landmarks or Landmark Sites

24.16.140 Generally—Landmark/landmark site designation.

24.16.150 Petition filing requirements—Landmark/landmark site designation.

24.16.160 Distribution and review of petition—Landmark/landmark site designation.

24.16.170 Hearing on petition—Landmark/landmark site designation.

24.16.180 Determination—Landmark/landmark site designation.

24.16.190 Preparation of designation bill upon approval of petition—Landmark/landmark site designation.

24.16.200 Procedure upon disapproval of petition—Landmark/landmark site designation.

24.16.210 Landmark/landmark site designation bill—Notice of pendency.

24.16.220 Landmark/landmark site designation bill—Copy filing.

24.16.230 Revision of landmark standards.

PART I. DESIGNATION OF HISTORIC DISTRICTS

24.16.010 Criteria for designation.

An area, site or improvement may be designated for preservation as an historic district or as a landmark and/or landmark site if it is a Cultural Resource or an area containing cultural resources or properties contributing, in the aggregate, to make the area a cultural resource. (1994 C., § 24.16.010; Ord. No. 64689, § 16, 1999.)

24.16.020 Generally—Historic district designation.

A. Notwithstanding its present zoning designation, an area together with the improvements therein may be designated an historic district by ordinance provided that the Preservation Board finds that the area meets one or more of the criteria for designation set out in Section 24.16.010.

B. An area may be submitted for designation as an historic district as set forth in Sections 24.16.030 through 24.16.120. (1994 C., § 24.16.020; Ord. No. 64925, § 10, 2000; Ord. No. 64689, § 17, 1999.)

24.16.030 Petition filing requirements—Historic district designation.

An area may be submitted for designation as an historic district in the following manner: A petition shall be filed in the office of the Preservation Board on such forms and in such manner as the Preservation Board may prescribe. Such petition may be initiated by the Preservation Board or any member thereof, or by the Alderman within whose ward the proposed district is situated or by the owners of ten percent or more of the square footage area (measured on the ground, exclusive of streets and alleys) included within the proposed district. The staff of the Cultural Resources Office shall cooperate with the petitioner in the preparation of the petition and shall, upon the petitioner's request, furnish data, reports, maps, graphics and other information and assistance necessary for the preparation of such petition. Each such petition shall include, but not be limited to:

A. A general location map and legal description of the proposed historic district by metes and bounds or other legal description that readily identifies the area;

B. A statement documenting the area's historic, architectural, cultural, archaeological or aesthetic significance, together with an architectural survey map that evaluates the significance of each improvement and/or topographic feature within the proposed historic district. The statement shall describe the current economic condition of the proposed historic district and shall describe the advantages to residents and to the City which may be anticipated as a consequence of designation;

C. A plat at a scale of not more than 300 feet to the inch indicating the existing uses of all properties within the proposed historic district;

D. A general plan for the area indicating all planned or proposed (public or private) restoration, development and demolition within the proposed historic district;

E. Proposed historic district standards to be applied within the district, including, but not limited to, design and construction standards for building facades, setbacks, height, scale, material, color and texture, trim, roof design and landscaping; standards for the design details of all fences, streets and drives, street furniture, signs and landscape materials; and standards for demolition of improvements within the district;

F. A statement of amendments (if any) to the existing zoning classification and boundaries necessary to conform to the proposed plan. (1994 C., § 24.16.030; Ord. No. 64689, § 18, 1999.)

24.16.040 Distribution and review of petition—Historic district designation.

A. Within five days after a petition for designation of an historic district has been filed as provided in Section 24.16.030, the Preservation Board shall transmit to the Planning Commission and to the Board of Public Service copies of the petition together with all exhibits and documents appurtenant thereto.

B. Within forty-five (45) days after such transmittal, the Planning Commission and the Board of Public Service shall review the petition and shall transmit to the Preservation Board such advice and recommendations as they deem appropriate as to: (i) the proposed designation's conformity with the Comprehensive Plan for the City and any applicable neighborhood and development plans; and (ii) the degree to which the proposed designation advances the physical development of the City. (1994 C., § 24.16.040; Ord. No. 64925, §§ 11, 12, 2000; Ord. No. 64689, § 19, 1999.)

24.16.050 Public hearing on petition—Historic district designation.

Within ninety (90) days after the filing of the petition, the Preservation Board shall hold a public hearing regarding the petition for designation. (1994 C., § 24.16.050; Ord. No. 64689, § 20, 1999.)

24.16.060 Notice of public hearing—Historic district designation.

A. The Preservation Board shall give public notice of such hearing at least fifteen (15) days prior to the date of the hearing by publication of notice in a daily newspaper of general circulation in the City. At least ten (10) days prior to the public hearing, the Preservation Board shall cause a placard containing the words, "Proposed Historic District In This Block" to be printed in large type and erected at each end of every block in which a district is proposed. Such placards shall also have prominently displayed and firmly attached thereto a copy of the notice which appears in the daily newspaper.

B. To the extent practicable, the Preservation Board may mail written notice of such hearing to the owner of each property located within the proposed historic district at least fifteen (15) days prior to the date of hearing. For this purpose, the Preservation Board may consult the current City tax lists or other current and readily available City lists of property owners, and notice deposited in the United States mail to the person or persons listed as the owner or taxpayer in any such records at the address listed in such records shall be deemed notice to the owner for purposes of compliance with this subsection. The failure to give or receive notice pursuant to this subsection shall not affect the validity of the Preservation Board's proceedings.

C. The notices for publication and mailing shall contain a clear description of the location of the area proposed for designation as an historic district, and a statement of the purpose, date, time and place of the hearing and that property owners affected thereby, or others interested therein, may appear at such hearing to be heard. (1994 C., § 24.16.060; Ord. No. 64689, § 21, 1999.)

24.16.070 Expression of views by interested parties—Historic district designation.

All interested parties shall be afforded at the public hearing a reasonable opportunity to express their views respecting the proposed district. (1994 C., § 24.16.070; Ord. No. 64689, § 22, 1999.)

24.16.080 Determination—Historic district designation.

A. After review and consideration of the petition, recommendations of the Board of Public Service and the Planning Commission and comments received from property owners and other interested parties, the Preservation Board shall:

1. Approve the petition as submitted; or

2. Approve the petition with such modifications or conditions as the Preservation Board shall deem appropriate; or

3. Disapprove the petition.

B. Such determination shall be in writing and shall be made within sixty (60) days after the public hearing on the petition unless the Preservation Board shall vote to extend such time period to permit additional studies or reports to be completed or for other good and proper cause. The Preservation Board shall promptly notify the petitioner, the Mayor, the Planning Commission, the Board of Public Service and the Clerk of the Board of Aldermen of the Preservation Board's determination. (1994 C., § 24.16.080; Ord. No. 64689, § 23, 1999.)

24.16.090 Preparation of Historic district designation bill upon approval of petition.

In the event of approval of a petition for designation of an historic district, the Preservation Board shall cause to be prepared an historic district designation bill with an historic district plan for the proposed district for consideration by the Board of Aldermen. The bill shall include, but not be limited to, the elements of the petition as described in Section 24.16.030. The historic district plan shall contain historic district standards for the regulation of construction and alteration of exterior architectural features within the historic district and shall provide for the preservation of the significant features or characteristics of the area which are the basis for the historic district designation. Within forty-five (45) days after the Preservation Board's approval of the petition, a copy of such designation bill together with the historic district plan shall be transmitted to the petitioner, the Clerk of the Board of Aldermen, the Planning Commission and the Mayor. (1994 C., § 24.16.090; Ord. No. 64689, § 24, 1999.)

24.16.100 Procedure upon disapproval of petition—Historic district designation.

In the event of disapproval of a petition, the Preservation Board shall state the reasons therefor and

possible alternatives thereto and shall forward a copy thereof to the petitioner, the Mayor, the Planning Commission, the Board of Public Service and the Clerk of the Board of Aldermen. (1994 C., § 24.16.100; Ord. No. 64689, § 25, 1999.)

24.16.110 Historic district designation bill—Notice of pendency.

After an historic district designation bill is introduced in the Board of Aldermen and assigned to Board's appropriate standing committee, such bill shall not be voted on by the Board until a public hearing is held by that committee. At least fifteen (15) days prior to the public hearing, the committee shall require the Clerk of the Board of Aldermen to cause to be published in a daily newspaper of general circulation in the City, a notice of the pendency of said bill. The notice shall contain a clear description of the location of the area proposed for designation as an historic district, and the date, time, and place of the hearing at which property owners affected thereby, or others interested therein, may appear before the aforesaid standing committee to be heard. At least ten days prior to the public hearing, the Clerk of the Board of Aldermen shall cause a placard containing the words "Proposed Historic District In This Block" to be printed in large type and erected at each end of every block in which a district is proposed. Such placards shall also have prominently displayed and firmly attached thereto a copy of the notice which appears in the daily newspapers. (1994 C., § 24.16.110; Ord. No. 64689, § 26, 1999.)

24.16.120 Historic district designation bill—Copy filing.

On passage by the Board of Aldermen and approval by the Mayor of an historic district designation bill, the Clerk of the Board of Aldermen shall forthwith file a copy of the historic district plan with the Register and a copy of the ordinance with the Recorder of Deeds. The Preservation Board shall retain on file in its office a true copy of the historic district plan as approved by such ordinance, including the historic district standards for such historic district, and shall transmit a true copy of the historic district plan with standards to the Building Commissioner and the Planning and Urban Design Agency. (1994 C., § 24.16.120; Ord. No. 64689, § 27, 1999.)

24.16.130 Revision of historic district standards.

Not less frequently than every five years after enactment of an historic district designation ordinance, the Preservation Board shall review and, if appropriate, recommend to the Planning Commission and Board of Aldermen revisions of the historic district standards included in the ordinance for the regulation of construction and alteration of exterior architectural features within the particular historic district, but such revised standards shall not become effective until and unless approved by the Planning Commission and by ordinance. Such recommended revisions shall take into account changes in circumstances or conditions of or affecting the historic district, the intent of this title, and the significant features and characteristics of the district that were the basis of the original historic district designation. The Preservation Board shall have the authority to adopt supplemental guidelines to explain, illustrate and implement the historic district standards, provided that such guidelines shall be consistent with the historic district designation ordinance, the historic district plan and historic district standards for such district. (1994 C., § 24.16.130; Ord. No. 64689, § 28, 1999.)

PART II. DESIGNATION OF LANDMARKS OR LANDMARK SITES

24.16.140 Generally—Landmark/landmark site designation.

A. Notwithstanding its present zoning district designation, any site or improvement together with the immediately adjacent premises may be designated a landmark and/or landmark site, by ordinance, provided that the Preservation Board finds that the site or improvement meets one or more of the criteria set out in Section 24.16.010.

B. A site or improvement may be submitted for designation as a landmark and/or landmark Site as provided in Sections 24.16.150 through 24.16.220. (1994 C., § 24.16.140; Ord. No. 64689, § 29, 1999.)

24.16.150 Petition filing requirements—Landmark/landmark site designation.

A petition shall be filed in the office of the Preservation Board on such forms and in such manner as the Preservation Board may prescribe. Such petition may be initiated by the owner or owners of the site or improvement proposed for designation, by the Alderman within whose ward the site or improvement is situated, or by the Cultural Resources Office on behalf of and at the request of the Preservation Board. The staff of the Cultural Resources Office shall cooperate

with the petitioner in the preparation of the petition and shall, upon the petitioner's request, furnish data, reports, graphics and other information and assistance necessary for the preparation of such petition. Each such petition shall include, but not be limited to:

A. A general location map and legal description of the site or improvement proposed for designation by metes and bounds or other legal description that readily identifies the site or improvement;

B. A statement documenting the historic, architectural, cultural, archeological or aesthetic significance of the site or improvement together with an architectural survey map that evaluates the significance of each improvement and/or topographic feature within the proposed site. The statement shall describe the current economic conditions and environs of the site or improvement and shall describe the advantages to adjacent property owners and to the City which may be anticipated as a consequence of designation;

C. A plat at an appropriate scale indicating the existing uses of all improvements and premises within the proposed site;

D. A general plan for the site or improvement indicating all planned or proposed (public or private) restoration, development and demolition within the site;

E. Proposed landmark standards to be applied to the site or improvement, including, but not limited to, design and construction standards for building facades, setbacks, height, scale, material, color and texture, trim, roof design and landscaping; standards for the design details of all fences, streets and drives, street furniture, signs and landscape materials; and standards for demolition of exterior architectural features;

F. A statement of amendment (if any) to the existing zoning classifications and boundaries necessary to conform to the proposed plan. (1994 C., § 24.16.150; Ord. No. 64689, § 30, 1999.)

24.16.160 Distribution and review of petition—Landmark/landmark site designation.

A. Within five (5) days after a petition for designation of a landmark or landmark site has been filed as above provided, the Preservation Board shall transmit copies of the petition together with all exhibits and documents appurtenant thereto to the Planning Commission and the Board of Public Service, and if the owner or owners of record of the site or improvement are not the petitioner, also to the owner or owners of record.

B. Within forty-five (45) days after such transmittal, the Planning Commission and the Board of Public Service shall review the petition and shall transmit to the Preservation Board such advice and recommendations as they may deem appropriate as to: (1) the proposed designation's conformity with the Comprehensive Plan for the City and any applicable neighborhood and development plans; and (2) the degree to which the proposed designation advances the physical development of the City. (1994 C., § 24.16.160; Ord. No. 64925, §§ 13, 14, 2000; Ord. No. 64689, § 31, 1999.)

24.16.170 Hearing on petition—Landmark/landmark site designation.

The Preservation Board shall, prior to making its determination with respect to the petition, permit the owner of record and any other interested party an opportunity to appear before the Preservation Board and be heard. In its discretion, the Preservation Board may hold a public hearing regarding the proposed designation. (1994 C., § 24.16.170; Ord. No. 64689, § 32, 1999.)

24.16.180 Determination—Landmark/landmark site designation.

A. After review and consideration of the petition, recommendations of the Board of Public Service and the Planning Commission, and comments received from the owner(s) and other interested parties, the Preservation Board shall:

1. Approve the petition as submitted; or

2. Approve the petition with such modifications or conditions as the Preservation Board shall deem appropriate; or

3. Disapprove the petition.

B. Such determination shall be in writing and shall be made within one hundred twenty (120) days after filing of the petition, or if a public hearing is held, then within sixty (60) days after such public hearing; provided that the Preservation Board may vote to extend such time period to permit additional studies or reports to be completed or for other good and proper cause. The Preservation Board shall promptly notify the petitioner, the Mayor, the Planning Commission, the Board of Public Service, the Clerk of the Board of Aldermen, and the owner(s) of record of the Preserva-

tion Board's determination. (1994 C., § 24.16.180; Ord. No. 64689, § 33, 1999.)

24.16.190 Preparation of designation bill upon approval of petition—Landmark/landmark site designation.

In the event of approval of a petition for designation of a landmark and/or landmark site, the Preservation Board shall cause to be prepared a landmark or landmark site designation bill with a landmark preservation plan for consideration by the Board of Aldermen. The designation bill shall include, but not be limited to, the elements of the petition as described in Section 24.16.150. The landmark preservation plan shall contain landmark standards for the regulation of construction and alteration of exterior architectural features of or within the landmark or landmark site and shall provide for the preservation of the significant features or characteristics of the site or improvement which are the basis for the landmark designation. Within forty-five (45) days after the Preservation Board's approval of the petition, a copy of such designation bill together with the landmark preservation plan and landmark standards shall be transmitted to the Clerk of the Board of Aldermen, to the Planning Commission, to the Mayor, and to the owner(s) of record. (1994 C., § 24.16.190; Ord. No. 64689, § 34, 1999.)

24.16.200 Procedure upon disapproval of petition—Landmark/landmark site designation.

In the event of disapproval of the petition, the Preservation Board shall state the reasons therefor and possible alternatives thereto, and shall forward a copy thereof to the petitioner, the owner(s) of record, the Mayor, the Planning Commission, the Board of Public Service and the Clerk of the Board of Aldermen. (1994 C., § 24.16.200; Ord. No. 64689, § 35, 1999.)

24.16.210 Landmark/landmark site designation bill—Notice of pendency.

After a landmark or landmark site designation bill is introduced in the Board of Aldermen and assigned to Board's appropriate standing committee, said bill shall not be voted on by Board until a public hearing is held by the committee. At least fifteen (15) days prior to the public hearing the committee shall require the Clerk of the Board of Aldermen to cause to be published in a daily newspaper of general circulation in the City a notice of the pendency of the designation bill. The notice shall contain a clear description of the location of the proposed landmark or landmark site and the date, time and place of the hearing at which property owners affected thereby, or others interested therein, may appear before the aforesaid standing committee to be heard. At least ten (10) days prior to the public hearing the Clerk of the Board of Aldermen shall cause a placard containing the words "Proposed Landmark Site In This Block" to be printed in large type and erected at each end of every block in which a site is proposed. Such placards shall also have prominently displayed and firmly attached thereto a copy of the notice which appears in the daily newspapers. (1994 C., § 24.16.210; Ord. No. 64689, § 36, 1999.)

24.16.220 Landmark/landmark site designation bill—Copy filing.

On passage by the Board of Aldermen and approval by the Mayor of a landmark or landmark site designation bill, the Clerk of the Board of Aldermen shall forthwith file a copy of the landmark preservation plan with the Register and a copy of the ordinance with the Recorder of Deeds. The Preservation Board shall retain on file in its office a true copy of the landmark preservation plan as approved by such ordinance, including the landmark standards for such landmark or landmark site, and shall transmit a true copy of the landmark preservation plan with standards to the Building Commissioner and the Planning and Urban Design Agency. The Cultural Resources Director shall cause to be prepared a notice in recordable form of the designation of the landmark or landmark site and shall cause such notice to be recorded with the Recorder of Deeds, and the Recorder of Deeds shall index such notice in the grantor index under the name of the record owner or owners of the landmark or landmark site. (1994 C., § 24.16.220; Ord. No. 64689, § 37, 1999.)

24.16.230 Revision of landmark standards.

The Preservation Board shall from time to time review and, if appropriate, recommend to the Planning Commission and Board of Aldermen revisions of the landmark standards for the various landmarks and landmark sites for the regulation of construction and alteration of exterior architectural features of the particular landmark or landmark site, but such revised standards shall not become effective until and unless approved by the Planning Commission and by ordinance. Such recommended revisions shall take into account changes in circumstances or conditions of or

affecting the landmark or landmark site, the intent of this title, and the significant features or characteristics of the site or improvement which were the basis of the landmark designation. The Preservation Board shall have the authority to adopt supplemental guidelines to explain, illustrate and implement the landmark standards, provided that such guidelines shall be consistent with the landmark or landmark site designation ordinance, the landmark preservation plan and landmark standards for such landmark or landmark site. (1994 C., § 24.16.230; Ord. No. 64689, § 38, 1999.)

Chapter 24.20

HISTORIC DISTRICTS AND LANDMARKS—CONSTRUCTION, ALTERATION AND DEMOLITION

Sections:

24.20.010 **Permit required when—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.020 **Preliminary design review of proposed construction or exterior alterations—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.030 **Determination of compliance or recommendation required before permit approved—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.040 **Consideration of permit application—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.050 **Granting or denial of permit application—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.060 **Appeal on actions or determinations—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.070 **Hearing on filed appeal—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.080 **Attempt to reconcile proposed action with applicable standards—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.090 **Consideration of claim that property cannot be put to reasonable beneficial use without approval of proposed work—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.100 **Considerations in review of proposed work—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.110 **Decision or determination—Demolition, construction, alteration—Historic district or landmark/landmark site.**

24.20.120 **Further appeals—Demolition—Historic district or landmark/landmark site.**

24.20.010 Permit required when—Demolition, construction, alteration—Historic district or landmark/landmark site.

No owner or other person shall construct, demolish or alter any designated feature or exterior architectural feature with respect to any improvement situated within an historic district, or within or part of a landmark or landmark site, nor shall such person cause or permit any such work to be performed upon such property, unless an application shall have been filed with the Building Commissioner and a permit obtained therefor from the Building Commissioner. The Building Commissioner shall immediately upon receipt of any such application for permit forward a copy of such application to the Cultural Resources Office for review. (1994 C., § 24.20.010; Ord. No. 64689, § 39, 1999.)

24.20.020 Preliminary design review of proposed construction or exterior alterations—Demolition, construction, alteration—Historic district or landmark/landmark site.

The Preservation Board may establish procedures for preliminary design review by the Cultural Resources Director and the staff of the Cultural Resources Office of proposed construction or exterior alterations where landmark or historic district standards may be expected to apply. If, after a preliminary design review as above, an application for permit is received by the Building Commissioner which con-

forms to the plans and specifications as approved at the preliminary design review, the Building Commissioner may issue the permit. (1994 C., § 24.20.020; Ord. No. 64689, § 40, 1999.)

24.20.030 Determination of compliance or recommendation required before permit approved—Demolition, construction, alteration—Historic district or landmark/landmark site.

No permit for any such construction, alteration or demolition shall be issued by the Building Commissioner unless the Cultural Resources Director shall have determined that the proposed work complies with the applicable historic district or landmark or landmark site standards, or the Preservation Board or Cultural Resources Director has recommended that the application for permit be approved. (1994 C., § 24.20.030; Ord. No. 64689, § 41, 1999.)

24.20.040 Consideration of permit application—Demolition, construction, alteration—Historic district or landmark/landmark site.

If the proposed construction, alteration or demolition is not covered by any duly approved design standard for the historic district, landmark or landmark site in which the improvement is situated, the Cultural Resources Office or the Preservation Board shall review the application for permit, as provided by the rules of the Preservation Board. In making such review, the Preservation Board or Cultural Resources Office, as the case may be, shall consider such application in light of the historic district plan and historic district standards with respect to the historic district, or the landmark plan and standards, as the case may be, the intent of this title, the effect of such proposed construction, alteration or demolition on the significant features or characteristics of the historic district or landmark or landmark site which were the basis for the historic district or landmark or landmark site designation and such other considerations as may be provided by rule of the Preservation Board. The Preservation Board or the Cultural Resources Office, as the case may be, shall forward its determinations or recommendations with respect to the application to the Building Commissioner within forty-five (45) days from the date of application for permit. The Building Commissioner shall deny the application for permit if the Preservation Board or the Cultural Resources Office, as the case may be, recommends that the permit be denied or if the applicant refuses to accept conditions to approval that may be required by the Cultural Resources Office or Preservation Board or by the Building Commissioner on direction of the Cultural Resources Office or the Preservation Board. (1994 C., § 24.20.040; Ord. No. 64689, § 42, 1999.)

24.20.050 Granting or denial of permit application—Demolition, construction, alteration—Historic district or landmark/landmark site.

The Building Commissioner shall in any case grant or deny the application for a permit within fifty (50) days from the date of application. (1994 C., § 24.20.050; Ord. No. 64689, § 43, 1999.)

24.20.060 Appeal on actions or determinations—Demolition, construction, alteration—Historic district or landmark/landmark site.

Any person aggrieved by, or any officer, department, board, bureau or commission of the City affected by, the action of the Building Commissioner with respect to a requested permit based on the Cultural Resources Office's application of the landmark or historic district standards to a requested permit or based on the recommendations or determinations by the Preservation Board or Cultural Resources Office pursuant to Sections 24.20.010 through 24.20.050, may appeal the action of the Building Commissioner to the Preservation Board for review and hearing. Such appeal shall be known as a preservation appeal and shall be taken within thirty (30) days after the action of the Building Commissioner by filing a notice of appeal with the Cultural Resources Office specifying the grounds of such appeal. (1994 C., § 24.20.060; Ord. No. 64689, § 44, 1999.)

24.20.070 Hearing on filed appeal—Demolition, construction, alteration—Historic district or landmark/landmark site.

Within forty-five (45) days after the filing of an appeal to the Preservation Board, the Preservation Board shall hold a hearing thereon. The Preservation Board shall hear the recommendations and evidence submitted by the Cultural Resources Office and by any officer, department, board, bureau or commission desiring to be heard thereon and shall permit the appellant and other parties to the appeal an opportunity to appear and be heard by the Preservation Board and to submit

evidence. The Preservation Board may permit any other interested person an opportunity to appear and be heard by the Preservation Board. The Preservation Board may continue or adjourn the hearing or schedule additional hearings to permit a full hearing of the appeal. The Preservation Board shall cause all proceedings in a preservation appeal to be suitably recorded and preserved. (1994 C., § 24.20.070; Ord. No. 64689, § 45, 1999.)

24.20.080 Attempt to reconcile proposed action with applicable standards—Demolition, construction, alteration—Historic district or landmark/landmark site.

The Preservation Board shall endeavor to reconcile the construction, alteration or demolition proposed by the applicant for permit with the applicable historic district or landmark standards. If an application for permit is revised or resubmitted in accordance with such a reconciliation, then the Building Commissioner shall approve the necessary permit, provided that any conditions for such permit under the building code or other ordinances have otherwise been met. (1994 C., § 24.20.080; Ord. No. 64689, § 46, 1999.)

24.20.090 Consideration of claim that property cannot be put to reasonable beneficial use without approval of proposed work—Demolition, construction, alteration—Historic district or landmark/landmark site.

If the applicant for permit claims that the property involved cannot be put to a reasonable beneficial use without the approval of the proposed construction, alteration or demolition the applicant shall present evidence at the hearing before the Preservation Board, establishing such claim, and in the case of income-producing property, the applicant shall also present evidence whether the applicant is able to obtain a reasonable return on the applicant's investment from the property without the approval of the proposed construction, alteration or demolition. If such a claim is presented, the Preservation Board shall consider the possibility of preserving the property, including plans for its use in economically productive ways. The Preservation Board may hear evidence thereon at the hearing or may continue the hearing for a reasonable time to permit the preparation and presentation of evidence thereon to the Preservation Board by the Cultural Resources Director, the Cultural Resources Office, or any other person, including members of the Preservation Board. After consideration of the evidence, the Preservation Board shall make a determination whether the property can be put to a reasonable beneficial use without the approval of the proposed work; and in the case of income-producing property, the Preservation Board shall also determine whether the applicant can obtain a reasonable return on its investment from the property without the approval of the proposed work. (1994 C., § 24.20.090; Ord. No. 64689, § 47, 1999.)

24.20.100 Considerations in review of proposed work—Demolition, construction, alteration—Historic district or landmark/landmark site.

In its review of the proposed construction, alteration or demolition, the Preservation Board shall consider whether the proposed work would violate the intent of this title and the intent of the applicable historic district or landmark or landmark site designation ordinance as reflected in the historic district or landmark preservation plan, whether the proposed work would adversely affect the characteristics of the district or site which were the basis for the historic district, landmark or landmark site designation, whether there have been changes in the circumstances or conditions in or affecting the historic district, landmark or landmark site since its designation, and other relevant considerations, such as the availability of economically feasible alternatives to the proposed work. (1994 C., § 24.20.100; Ord. No. 64689, § 48, 1999.)

24.20.110 Decision or determination—Demolition, construction, alteration—Historic district or landmark/landmark site.

A. Unless there shall have been a reconciliation, the Preservation Board shall issue a decision, reversing or affirming, with or without conditions or modifications, the action of the Building Commissioner with respect to the requested permit or make such order, decision or determination as ought to be made. The Preservation Board shall make its decision within fifty-five (55) days after the filing of appeal to the Preservation Board, except that if the applicant for permit submits evidence in support of a claim that the property cannot be put to a reasonable beneficial use without the approval of the proposed construction, alteration or demolition, the Preservation Board shall have forty-five (45) days following completion of the hearing

on the preservation appeal to make its decision, including any determinations required to be made under Section 24.20.090. The Preservation Board shall promptly notify the parties and the Building Commissioner in writing of its decision. Such decisions of the Preservation Board as they affect an application for demolition of a structure, whether in whole or in part, are provisional for which review by the Planning Commission is possible consistent with Sections 24.20.120 and 24.28.010 hereof; all other such decisions of the Preservation Board are final for purposes of RSMo 536.110. Notwithstanding the foregoing, a decision of the Preservation Board to grant a demolition permit in which a delay is imposed, as described in Subsection B of this section, is not susceptible to review by the Planning Commission until and unless the period of delay has expired.

B. If the Preservation Board determines that the property cannot be put to a reasonable beneficial use without the approval of the proposed construction, alteration or demolition, the Preservation Board shall recommend that the application for permit be granted (subject to applicable building code requirements), except that the Preservation Board may delay the granting by the Building Commissioner of the permit for construction, alteration or demolition for up to one hundred (100) days to pursue alternatives for preserving such property. Such period of delay shall be measured from the date of the Preservation Board's decision of the preservation appeal. The determination to delay the granting of such permit shall require the affirmative vote of at least five of the seven members of the Preservation Board and a finding by the Preservation Board that the proposed construction, alteration or demolition will have a significant adverse effect on the historic district or the landmark or landmark site. If, during such period of delay, new or additional material information is discovered or becomes available to the Preservation Board relating to the reasonable beneficial use of the property or to alternatives for preserving such property, the Preservation Board may, during such period of delay and upon notice to the parties, reopen the hearing to take additional evidence and may revise its findings or decision based on such evidence. (1994 C., § 24.20.110; Ord. No. 64925, § 1, 2000; Ord. No. 64689, § 49, 1999.)

24.20.120 Further appeals—Demolition—Historic district or landmark/landmark site.

An applicant aggrieved by, or any officer, department, board, bureau or commission of the City affected by, a decision of the Preservation Board upon a preservation appeal relating to demolition of a structure, in whole or in part, may request review of such provisional decision by the Planning Commission. Such request shall be in writing and delivered by certified or registered mail, within thirty (30) days of the issuance of the provisional decision, to the Planning Commission in care of the Director of the Planning Office at its then address, with a copy to the Director of the Cultural Resources Office and the City Counselor of the City of St. Louis. The Planning Commission shall review such request at a regular or special meeting held within forty-five (45) days of the receipt thereof. The decision of the Planning Commission to accept or deny such review shall be exercisable in its sole, unrestricted discretion by a vote of a majority of a quorum of the Planning Commission. The Planning Commission shall give written notice of its decision to all affected parties within twenty (20) days. If such decision is to refuse review, then the written notice thereof shall constitute notice to the aggrieved party of the finality of the Preservation Board's decision for purposes of RSMo 536.110. If the decision of the Planning Commission is to accept review, then the notice shall, in addition to notifying all affected parties of the decision, inform all parties of the date and time for such review in accordance with Section 24.28.010. The Cultural Resources Office shall immediately refer any application which is the subject of such an appeal as well as the full and complete evidentiary record adduced before the Preservation Board to the Planning Commission prior to the date of the Planning Commission's review. (1994 C., § 24.20.120; Ord. No. 64925, § 2, 2000; Ord. No. 64689, § 50, 1999.)

Chapter 24.24

PUBLIC STRUCTURES, MONUMENTS AND FIXTURES

Sections:

24.24.010 Recommendations of Preservation Board regarding public structures and monuments.

24.24.020 Exterior design review of structures or fixtures paid for by City or erected upon or extending over public streets, parks, etc.

24.24.010 Recommendations of Preservation Board regarding public structures and monuments.

With the prior written approval of the Planning Commission, the Preservation Board shall make recommendations to the Board of Aldermen and to the Board of Public Service regarding the location, design, and decoration of any public building, bridge, fountain, arch, lamppost, stained glass, tablet, statue, gateway, fence, monument or memorial of any kind of a permanent character and location. No such public structure or monument shall be erected or installed in any public place, or removed, relocated, or altered in any way until the plans therefor have been submitted to the Preservation Board and the recommendations of the Preservation Board, or a majority thereof, have been made to the property authority. Such recommendations must be made within a period of 45 days from submission to the Preservation Board. Failure to make recommendations within that period shall make the decision of the Preservation Board unnecessary. (1994 C., § 24.24.010; Ord. No. 64689, § 51, 1999.)

24.24.020 Exterior design review of structures or fixtures paid for by City or erected upon or extending over public streets, parks, etc.

No construction of any building, arch, gate, fence or other fixture which is to be paid for either wholly or in part by the City from general revenue funds of the City shall be begun unless the exterior design thereof shall have been submitted to the Preservation Board and recommendations made by it, except as herein provided, before the final approval thereof by the officer or other person having authority to contract therefor. The approval of the Preservation Board shall be required in respect to all fixtures or structures belonging to any person which shall be erected upon or extending over any public street, highway, stream, lake, square, park or other public place within the City, except as provided in this title. In deeds or leases for land made by the City, restrictions may be imposed requiring that the design and location of structures to be altered or erected thereon shall be first approved by the Preservation Board. Nothing requiring the recommendation or approval of the Preservation Board as provided in this section or Section 24.24.010 of this chapter shall be changed in exterior design or location without its approval; provided, that, in case of dispute, the Board of Public Service shall be the final arbiter and its decision shall prevail. If the Preservation Board fails to act upon any matter submitted to it under this section within 45 days after such submission, its approval of the matter submitted shall be presumed. (1994 C., § 24.24.020; Ord. No. 64689, § 52, 1999.)

Chapter 24.28

APPEALS

Sections:

24.28.010 Appeals from decisions of the Preservation Board—Generally.

24.28.010 Appeals from decisions of the Preservation Board—Generally.

In reviewing decisions of the Preservation Board under Sections 24.20.120 and 24.40.060, the Planning Commission shall be limited to determining the correctness of the provisional decision by reviewing the record as adduced before the Preservation Board in light of the applicable and appropriate standard. The Planning Commission may consider both oral and written arguments but no new or additional evidence may be considered. The Planning Commission may continue or adjourn the meeting, or schedule additional sessions to permit full consideration. The Planning Commission shall issue its decision within thirty (30) days after the conclusion of the review, provided, that, if a majority of the Planning Commission finds the matter is unusually complex or that argument is unusually extensive, or both, issuance of its decision may be deferred until not later than sixty (60) days after the conclusion of the consideration. The Planning Commission shall, in writing, affirm, reverse or modify the decision of the Preservation Board. No request for reconsideration or rehearing shall be allowed. The Planning Commission shall give written notice of its decision to all affected parties. The decision shall constitute notice to the aggrieved party of the finality of the Preservations Board's decision for purposes of RSMo 536.110. The Planning Commission may promulgate rules, consistent herewith, and with other applicable law, concerning the conduct of review of provisional decisions from the Preservation Board. (1994 C., § 24.28.010; Ord. No. 64925, § 3, 2000; Ord. No. 64689, § 53, 1999.)

Chapter 24.32

LEGISLATIVE FINDINGS WITH RESPECT TO REVIEW OF CERTAIN DEMOLITIONS

Sections:

24.32.010 Findings.

24.32.010 Findings.

The Board of Aldermen of the City finds and declares as follows:

A. St. Louis contains a stock of residential and commercial buildings which is characterized by certain common architectural styles and quality construction.

B. This building stock imparts a distinct and distinguished appearance to St. Louis which is of benefit and is attractive to visitors.

C. Adaptive reuse of residential and commercial buildings in St. Louis has often proved to be an economically feasible and potentially profitable alternative to demolition and should be encouraged.

D. Evaluation of the economic feasibility and potential profitability of adaptive reuse is a legitimate function of the Preservation Board and Cultural Resources Office. (1994 C., § 24.32.010; Ord. No. 64689, § 54, 1999.)

Chapter 24.36

PRESERVATION REVIEW DISTRICTS

Sections:

24.36.010 Established.

24.36.020 Public hearing required—Notice.

24.36.010 Established.

Preservation review districts may be established by ordinance for areas of the City in which the Board of Aldermen finds, by ordinance, reviews of the effects of demolitions on the area are in the public interest. Prior to adoption of a preservation review district ordinance, (1) the Alderman for the ward in which the proposed district is located shall have requested the Cultural Resources Office and the Preservation Board to assess the architectural and/or cultural quality of the proposed district, and (2) within forty-five (45) days thereafter the Cultural Resources Office and the Preservation Board shall have reported its findings to the Planning Commission and the Board of Aldermen. The Cultural Resources Office and the Preservation Board shall assess the proposed district as having (1) high historic district potential; (2) possible historic district potential; (3) low historic district potential; (4) demolitions within the last two years in excess of the average for similar areas in the City. Districts which are reported as being in categories (1), (2) or (4) may be designated preservation review districts. Preservation review district ordinances may be repealed by ordinance at any time without Cultural Resources Office or Preservation Board action. (1994 C., § 24.36.010; Ord. No. 64689, § 55, 1999.)

24.36.020 Public hearing required—Notice.

No ordinance designating a preservation review district shall be adopted until the aldermanic committee to which the bill is assigned shall have conducted a public hearing on the bill. Notice of the hearing shall be given in a newspaper of daily circulation and in the City Journal at least ten days prior to such committee hearing. (1994 C., § 24.36.020; Ord. No. 64689, § 56, 1999.)

Chapter 24.40

DEMOLITION REVIEWS

Sections:

24.40.010 Application.

24.40.020 Demolition permit—Review approval.

24.40.030 Demolition permit—Photos.

24.40.040 Demolition permit—Preservation Board decision.

24.40.050 Application—Evaluation—Validity of approval or denial—Time requirements.

24.40.060 Appeals.

24.40.070 Demolition permit approval—Effect of prior legal actions.

24.40.080 Preservation Review Districts.

24.40.090 Demolition permits—Copies of application submitted, to whom.

24.40.100 Demolition permit—Review—Approval.

24.40.110 Demolition permit—Application plans.

24.40.120 Demolition permit—Board decision.

24.40.130 Application—Evaluation—Validity of approval or denial.

24.40.140 Denial—Proposed subsequent construction.

24.40.150 Appeals.
24.40.160 Demolition permit approval—Effect of prior legal actions.
24.40.170 Administration.
24.40.180 Preservation Review District Boundaries.

24.40.010 Application.

Whenever an application is made for a permit to demolish a structure which is (1) individually listed on the National Register, (2) within a National Register district, (3) for which National Register designation is pending, or (4) which is within a preservation review district established pursuant to Sections 24.36.010 to 24.36.020 of this title, the Building Commissioner shall submit a copy of such application to the Cultural Resources Office within three days after said application is received by his office. (1994 C., § 24.40.010; Ord. No. 64689, § 58, 1999.)

24.40.020 Demolition permit—Review approval.

The Cultural Resources Office or Preservation Board shall have forty-five working days after receipt of a copy of an application under Section 24.40.010 to review same as hereinafter provided and advise the Building Commissioner in writing of their decision. Failure to notify the Building Commissioner in writing by the end of such period of forty-five working days shall constitute an approval of such application. (1994 C., § 24.40.020; Ord. No. 64689, § 59, 1999.)

24.40.030 Demolition permit—Photos.

Any applicant shall submit a 35mm photographic print, 3″ × 5″ minimum, focused and exposed to show all visible facades, door and window openings and any architectural ornamentation. (1994 C., § 24.40.030; Ord. No. 64689, § 60, 1999.)

24.40.040 Demolition permit—Preservation Board decision.

All demolition permit application reviews pursuant to Sections 24.40.010 to 24.40.060 shall be made by the Preservation Board, which shall either approve or disapprove of all such applications. The Preservation Board may, by a duly adopted order or regulation consistent with this chapter, authorize the Cultural Resources Office to make reviews of demolition permit applications. Decisions of the Preservation Board or Cultural Resources Office shall be in writing, shall be mailed to the applicant immediately upon completion and shall indicate the application by the Preservation Board or Cultural Resources Office of the following criteria, which are listed in order of importance, as the basis for the decision:

A. *Redevelopment Plans.* Demolitions which would comply with a redevelopment plan previously approved by ordinance shall be approved except in unusual circumstances which shall be expressly noted.

B. *Architectural Quality.* A structure's architectural merit, uniqueness, and/or historic value shall be evaluated and the structure classified as high merit, merit, qualifying, or non-contributing based upon: Overall style, era, building type, materials, ornamentation, craftsmanship, site planning, and whether it is the work of a significant architect, engineer, or craftsman; and contribution to the streetscape and neighborhood. Demolition of sound high merit structures shall not be approved by the Office. Demolition of merit or qualifying structures shall not be approved except in unusual circumstances which shall be expressly noted.

C. *Condition.* The Office shall make exterior inspections to determine whether a structure is sound. If a structure or portion thereof proposed to be demolished is obviously not sound, the application for demolition shall be approved except in unusual circumstances which shall be expressly noted. The remaining or salvageable portion(s) of the structure shall be evaluated to determine the extent of reconstruction, rehabilitation or restoration required to obtain a viable structure.

1. Sound structures with apparent potential for adaptive reuse, reuse and/or resale shall generally not be approved for demolition unless application of criteria in Subsection A, D, F or G of this section indicates demolition is appropriate.

2. Structurally attached or groups of buildings. The impact of the proposed demolition on any remaining portion(s) of the building will be evaluated. Viability of walls which would be exposed by demolition and the possibility of diminished value resulting from the partial demolition of a building, or of one or more buildings in a group of buildings, will be considered.

D. *Neighborhood Effect and Reuse Potential.*

1. *Neighborhood Potential.* Vacant and vandalized buildings on the block face, the present condition of surrounding buildings, and the current level of repair and maintenance of neighboring buildings shall be considered.

2. *Reuse Potential.* The potential of the structure for renovation and reuse, based on similar cases within the City, and the cost and extent of possible renovation shall be evaluated. Structures located within currently well-maintained blocks or blocks undergoing upgrading renovation will generally not be approved for demolition.

3. *Economic Hardship.* The Office shall consider the economic hardship which may be experienced by the present owner if the application is denied. Such consideration may include, among other things, the estimated cost of demolition, the estimated cost of rehabilitation or reuse, the feasibility of public or private financing, the effect of tax abatement, if applicable, and the potential for economic growth and development in the area.

E. *Urban Design.* The Office shall evaluate the following urban design factors:

1. The effect of a proposed partial demolition on attached or row buildings;

2. The integrity of the existing block face and whether the proposed demolition will significantly impact the continuity and rhythm of structures within the block;

3. Proposed demolition of buildings with unique or significant character important to a district, street, block or intersection will be evaluated for impact on the present integrity, rhythm, balance and density on the site, block, intersection or district;

4. The elimination of out-of-scale or out-of-character buildings or nonconforming land uses will be considered; however, the fact that a present and original or historic use of a site does not conform to present zoning or land use requirements in no way shall require that such a nonconforming use be eliminated.

F. *Commonly Controlled Property.* If a demolition application concerns property adjoining occupied property and if common control of both properties is documented, favorable consideration will generally be given to appropriate reuse proposals. Appropriate uses shall include those allowed under the current zoning classification, reuse for expansion of an existing conforming, commercial or industrial use or a use consistent with a presently conforming, adjoining use group. Potential for substantial expansion of an existing adjacent commercial use will be given due consideration.

G. *Accessory Structures.* Accessory structures (garages, sheds, etc.) and ancillary structures will be processed for immediate resolution. Proposed demolition of frame garages or accessory structures internal to commercial or industrial sites will, in most cases, be approved unless that structure demonstrates high significance under the other criteria listed herein, which shall be expressly noted. (1994 C., § 24.40.040; Ord. No. 64689, § 61, 1999.)

24.40.050 Application—Evaluation—Validity of approval or denial—Time requirements.

A. Approvals or denials of applications hereunder shall be valid only for the owner shown on the demolition application. Requests or applications for reconsideration shall not be permitted with respect to an application. The Cultural Resources Office may refer any application with respect to which it has been granted review authority to the Preservation Board for initial evaluation and decision hereunder. In performing its evaluation of any application hereunder, the Cultural Resources Office may request further information from an applicant or owner, make site visits or photographs, consult or obtain from public or private sources any information pertinent to its evaluation, and may consider the views of owners of property adjacent to the structure, of nonprofit neighborhood associations for the area in which the structure is located, or of established architectural preservation organizations. Any information so obtained and any communications received by the Preservation Board and Office concerning any application shall be summarized in the Preservation Board or Office's decision.

B. No application for demolition permit shall be considered unless filed more than one year from the date of final decision on the merits of the most recent demolition application for the same structure. "Date of final decision on the merits," for purposes hereof, shall mean the latest date on which there was rendered a final administrative decision of the Preservation Board with regard to the application, or a decision of a court of competent jurisdiction upon judicial review of the administrative decision. (1994 C., § 24.40.050; Ord. No. 64925, § 9, 2000; Ord. No. 64689, § 62, 1999.)

24.40.060 Appeals.

Any applicant or current owner of a structure may appeal an initial decision of the Preservation Board or a decision of the Cultural Resources Office under Sections 24.40.010 to 24.40.050 to the Preservation Board by filing a written notice of such appeal with the Cultural Resources Office within fifteen (15) days after the date of mailing of such decision by the Cultural Re-

sources Office. The Cultural Resources Office shall immediately refer any application which is the subject of such an appeal, and the Cultural Resources Office's entire file thereon, to the Preservation Board for hearing and resolution, based on the criteria set out in Sections 24.40.010 to 24.40.050. Requests or applications to the Preservation Board for reconsideration of any such appeal shall not be permitted. The Preservation Board shall issue its provisional decision on applications appealed under this section by the sixtieth working day following receipt of the application by the Office under Section 24.40.010. Any such appeal shall be deemed and conducted as a contested case within the meaning of RSMo Ch. 536, as amended, and shall be appealable and reviewable as in such chapter provided. The Cultural Resources Office is hereby authorized to appeal any decision of the Preservation Board. Request for review of any such decision of the Preservation Board may be made to the Planning Commission as provided in Sections 24.20.120 and 24.28.010. (1994 C., § 24.40.060; Ord. No. 64925, § 4, 2000; Ord. No. 64689, § 63, 1999.)

24.40.070 Demolition permit approval—Effect of prior legal actions.

No demolition permit for properties described in Section 24.40.010, except in emergency situations, shall be issued by the Building Commissioner unless it has been approved as provided in Sections 24.40.020 to 24.40.070. (1994 C., § 24.40.070; Ord. No. 64689, § 64, 1999.)

24.40.080 Preservation Review Districts.

Preservation Review Districts are hereby established for the areas of the City of St. Louis described in Section 24.40.180. (Ord. No. 64832, § 1, 1999.)

24.40.090 Demolition permits—Copies of application submitted, to whom.

Whenever an application is made for a permit to demolish a structure within those areas depicted in Section 24.40.180, the Building Commissioner shall submit a copy of such application to the Alderman in whose ward the structure is located within three (3) working days after such application is received by his office. In addition to satisfying all other existing requirements and except in emergency situations, the Building Commissioner shall also submit a copy of such application to the Cultural Resources Office of the Planning and Urban Design Agency within three (3) working days after said application is received by his office. (Ord. No. 64832, § 2, 1999.)

24.40.100 Demolition permit—Review—Approval.

The Office or Board shall have forty-five working days after receipt of a copy of a fully completed application to review same as hereinafter provided and advise the Building Commissioner in writing of their decision. Failure to notify the Building Commissioner in writing by the end of such period of forty-five working days shall constitute an approval of such application. (Ord. No. 64832, § 3, 1999.)

24.40.110 Demolition permit—Application plans.

A. Notwithstanding the provisions of any ordinance to the contrary, any applicant shall submit with his demolition permit application plans for any proposed use of the site of the structure after demolition, which shall include:

1. Current and proposed site plans showing all existing and proposed construction to scale;

2. Landscape plans;

3. Elevation facing streets or parks of all proposed or renovated structures, or existing structures to remain, to scale.

B. Any applicant shall also submit 35mm photographic prints, 3" x 5" minimum, focused and exposed to show all visible facades, door and window openings and any architectural ornamentation. (Ord. No. 64832, § 4, 1999.)

24.40.120 Demolition permit—Board decision.

All demolition permit application reviews pursuant to this chapter shall be made by the Director of the Office who shall either approve or disapprove of all such applications based upon the criteria of this chapter. All appeals from the decision of the Director shall be made to the Preservation Board. Decisions of the Board or Office shall be in writing, shall be mailed to the applicant immediately upon completion and shall indicate the application by the Board or Office of the following criteria, which are listed in order of importance, as the basis for the decision:

A. *Redevelopment Plans.* Demolitions which would comply with a redevelopment plan previously approved by ordinance or adopted by the Planning and Urban Design Commission shall be approved except in unusual circumstances which shall be expressly noted.

B. *Architectural Quality.* Structure's architectural merit, uniqueness, and/or historic value shall be evalu-

ated and the structure classified as high merit, merit, qualifying, or noncontributing based upon: overall style, era, building type, materials, ornamentation, craftsmanship, site planning, and whether it is the work of a significant architect, engineer, or craftsman; and contribution to the streetscape and neighborhood. Demolition of sound high merit structures shall not be approved by the Office. Demolition of merit or qualifying structures shall not be approved except in unusual circumstances which shall be expressly noted.

C. *Condition.* The Office shall make exterior inspections to determine whether a structure is sound. If a structure or portion thereof proposed to be demolished is obviously not sound, the application for demolition shall be approved except in unusual circumstances which shall be expressly noted. The remaining or salvageable portion(s) of the structure shall be evaluated to determine the extent of reconstruction, rehabilitation or restoration required to obtain a viable structure.

1. Sound structures with apparent potential for adaptive reuse, reuse and or resale shall generally not be approved for demolition unless application of criteria in Subsections A, D, F and G, Sections 24.40.110, 24.40.130 and 24.40.140 indicates demolition is appropriate.

2. Structurally attached or groups of buildings. The impact of the proposed demolition on any remaining portion(s) of the building will be evaluated. Viability of walls which would be exposed by demolition and the possibility of diminished value resulting from the partial demolition of a building, or of one or more buildings in a group of buildings, will be considered.

D. *Neighborhood Effect and Reuse Potential.*

1. *Neighborhood Potential.* Vacant and vandalized buildings on the block face, the present condition of surrounding buildings, and the current level of repair and maintenance of neighboring buildings shall be considered.

2. *Reuse Potential.* The potential of the structure for renovation and reuse, based on similar cases within the City, and the cost and extent of possible renovation shall be evaluated. Structures located within currently well maintained blocks or blocks undergoing upgrading renovation will generally not be approved for demolition.

3. *Economic Hardship.* The Office shall consider the economic hardship which may be experienced by the present owner if the application is denied. Such consideration may include, among other things, the estimated cost of demolition, the estimated cost of rehabilitation or reuse, the feasibility of public or private financing, the effect of tax abatement, if applicable, and the potential for economic growth and development in the area.

E. *Urban Design.* The Office shall evaluate the following urban design factors:

1. The effect of a proposed partial demolition on attached or row buildings.

2. The integrity of the existing block face and whether the proposed demolition will significantly impact the continuity and rhythm of structures within the block.

3. Proposed demolition of buildings with unique or significant character important to a district, street, block or intersection will be evaluated for impact on the present integrity, rhythm, balance and density on the site, block, intersection or district.

4. The elimination uses will be considered; however, the fact that a present and original or historic use of a site does not conform to present zoning or land use requirements in no way shall require that such a nonconforming use to be eliminated.

F. *Proposed Subsequent Construction.* Notwithstanding the provisions of any ordinance to the contrary, the office shall evaluate proposed subsequent construction on the site of proposed demolition based upon whether:

1. The applicant has demonstrated site control by ownership or an option contract;

2. The proposed construction would equal or exceed the contribution of the structure to the integrity of the existing streetscape and block face. Proposal for creation of vacant land by demolition(s) in question will be evaluated as to appropriateness on that particular site, within that specific block. Parking lots will be given favorable consideration when directly adjoining/abutting facilities require additional off-street parking;

3. The proposed construction will be architecturally compatible with the existing block face as to building setbacks, scale, articulation and rhythm, overall architectural character and general use of exterior materials or colors;

4. The proposed use complies with current zoning requirements;

5. The proposed new construction would commence within twelve (12) months from the application date.

G. *Commonly Controlled Property.* If a demolition application concerns property adjoining occupied property and if common control of both properties is documented, favorable consideration will generally be given to appropriate reuse proposals. Appropriate uses shall include those allowed under the current zoning classification, reuse for expansion of an existing conforming, commercial or industrial use or a use consistent with a presently conforming, adjoining use group. Potential for substantial expansion of an existing adjacent commercial use will be given due consideration.

H. *Accessory Structures.* Accessory structures (garages, sheds, etc.) and ancillary structures will be processed for immediate resolution. Proposed demolition of frame garages or accessory structures internal to commercial or industrial sites will, in most cases, be approved unless that structure demonstrates high significance under the other criteria listed herein, which shall be expressly noted. (Ord. No. 64832, § 5, 1999.)

24.40.130 Application—Evaluation—Validity of approval or denial.

Approvals or denials of applications hereunder shall be valid only for the owner shown on the demolition application. The office may refer any application to the Board for initial evaluation and decision hereunder. In performing its evaluation of any application hereunder, the Office may request further information from an applicant or owner, make site visits or photographs, consult or obtain from public or private sources any information pertinent to its evaluation, and may consider the views of owners of property adjacent to the structure, of nonprofit neighborhood associations for the area in which the structure is located, or of established architectural preservation organizations. Any information so obtained and any communications received by the Board and Office concerning any application shall be summarized in the Board or Office's decision. (Ord. No. 64832, § 6, 1999.)

24.40.140 Denial—Proposed subsequent construction.

If the denial of an application is based on Section 24.40.120.F, "Proposed Subsequent Construction," the Board or Office shall expressly so indicate in its decision. In such event the applicant may, within ten (10) days after the date of mailing of such decision by the office, notify the Board or Office, as the case may be, in writing that he wishes a "design conference." Such notification shall suspend the decision of the Board or Office for sixty-five working days, during which time the applicant and the Commissioner Office shall endeavor for up to sixty working days to arrive at a satisfactory proposal for subsequent construction. No later than the sixty-fifth working day from the date of notification by the applicant under this section, the Board or Office shall issue a supplemental decision on the application. (Ord. No. 64832, § 7, 1999.)

24.40.150 Appeals.

Any applicant or current owner of a structure may appeal an initial decision of the office hereunder to the Board by filing a written notice of such appeal with the office within fifteen days after the date of mailing of such decision by the Office. The Office shall immediately refer any application which is the subject of such an appeal, and the Office's entire file thereon, to the Board for hearing and resolution, based on the criteria set out in this chapter. Requests or applications to the Board for reconsideration of any such appeal shall not be permitted. The Board shall issue its decision on applications appealed under this section by the sixtieth working day following receipt of the application by the Office. Any such appeal shall be deemed and conducted as a contested case within the meaning of RSMo Ch. 536, as amended, and shall be appealable and reviewable as in such chapter provided. The Office is hereby authorized to appeal any decision of the Board. (Ord. No. 64832, § 8, 1999.)

24.40.160 Demolition permit approval—Effect of prior legal actions.

No demolition permit, except in emergency situations, shall be issued by the Building Commissioner unless it has been approved as provided in this chapter. Any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before the effective date of the ordinance codified in this chapter; but every act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes as if the prior law had remained in full force and effect. No offense committed and no liability, penalty or forfeiture either civilly or criminally incurred prior to the effective date of the ordinance codified in this chapter, shall be discharged or affected by this chapter; but prosecutions and suits for such offenses, liabilities, penalties or forfeitures shall be instituted and proceeds with in all respects as if this

chapter had not taken effect. (Ord. No. 64832, § 9, 1999.)

24.40.170 Administration.

This chapter shall be administered by the Office, which may, with the approval of the Board, issue regulations consistent herewith to facilitate such administration. Copies of any such regulations shall be made available for the public in the office of the Board and furnished to the Building Commissioner. (Ord. No. 64832, § 10, 1999.)

24.40.180 Preservation Review District Boundaries.

PRESERVATION REVIEW DISTRICT ONE

Beginning at the intersection of the Mississippi River and the centerline of the eastern prolongation of Palm, and proceeding along the centerlines in a generally clockwise direction west to the Mark Twain Expressway, north to Newhouse, west to Twentieth, north to Ferry, west to Strodtman, north to Bissell, east to Blair, west to Grand, east to the Mark Twain Expressway, northwest to West Florissant, northwest to Riverview, north to the railroad tracks, west to Goodfellow, north to Switzer, east to Oxford Lane, north to Goodfellow, northeast to Veronica, east to Northcrest, north to the northern City limits, east and north and east along the City limits to the Mississippi River, and southeast to the point of beginning.

PRESERVATION REVIEW DISTRICT TWO

Beginning at the intersection of the centerlines of Palm and Twenty-First, and proceeding along the centerlines in a generally clockwise direction west to Natural Bridge, west to Farrar southwest to Palm, west to Glasgow, south to Sullivan, west to Grand, south to St. Louis, west to Prairie, north to Greer, west to Vandeventer, north to Fairgrounds Park, through Fairgrounds Park along the road to Prairie, north to Penrose, west to Clay, north to Rosalie, northwest to Adelaide, northeast to West Florissant, northwest to the Mark Twain Expressway, southeast to Grand, southwest to Blair, southeast to Bissell, southwest to Strodtman, southeast to Ferry, northeast to Twentieth, south to Newhouse, east to the Mark Twain Expressway, southeast to Destrehan, southwest to Twenty-First, and southeast and south to the point of beginning.

PRESERVATION REVIEW DISTRICT THREE

Beginning at the intersection of the centerlines of Dr. Martin Luther King and Tucker, and proceeding along the centerlines in a generally clockwise direction south to Market, west to Fourteenth, south to Park, west to Dolman, south along Dolman and its southern prolongation to the eastward prolongation of Interstate 44, west along said prolongation and Interstate 44 to Jefferson, north to Lafayette, west to Nebraska, south to Magnolia, west to Grand, north to Chouteau, east to Compton, north to Laclede, west to Channing, north to Olive, east to Leffingwell, north to Dr. Martin Luther King, and east to the point of beginning.

PRESERVATION REVIEW DISTRICT FOUR

Beginning a t the intersection of the centerlines of the eastern prolongation of Morgan Street and the Mississippi River, and proceeding along the centerlines in a generally clockwise direction south to Poplar, east to Tucker, north to Convention Center Plaza, and east to the Mississippi River along Convention Center Plaza and Morgan Street to the point of beginning.

PRESERVATION REVIEW DISTRICT FIVE

Beginning at the intersection of the centerlines of Grand and Magnolia, and proceeding along the centerlines in a generally clockwise direction west to Kingshighway, south to Arsenal, west to Brannon, north to Southwest, northeast to Kingshighway, north to Interstate 44, east to Tower Grove, north to Blaine, east to 39th, north to Park, east to Grand, and south to the point of beginning.

PRESERVATION REVIEW DISTRICT SIX

Beginning at the intersection of the centerline of the eastern prolongation of Utah and the Mississippi River, and proceeding along the centerlines in a generally clockwise direction west to Broadway, south to Utah, west to Ninth, south to Utah, west to Lemp, south to the alley between Cherokee and Potomac, west along the alley and its western prolongation to Jefferson, north to Cherokee, west to Compton, south to Potomac, west to Grand, north to Magnolia, east to Compton, south to Pestalozzi,

east to Jefferson, north to Sidney, east to Eleventh, north to Victor, east to Seventh Street, north to Barton, east along Barton and its eastern prolongation to the Mississippi River, and south to the point of beginning.

PRESERVATION REVIEW DISTRICT SEVEN

Beginning at the intersection of the centerline of the eastern prolongation of Mount Pleasant and the Mississippi River, and proceeding along the centerlines in a generally clockwise direction west to Broadway, north to California, north on California to Gasconade, west to Minnesota, north to Osage, west to Grand, north to Potomac, east to Compton, north to Cherokee, east to Jefferson, south to the western prolongation of the alley between Cherokee and Potomac, east along said prolongation and the alley to Lemp, north to Utah, east to Ninth, north to Utah, east to Broadway, north to Utah, and southeast along Utah and its eastern prolongation to the Mississippi River and south to the point of beginning.

PRESERVATION REVIEW DISTRICT EIGHT

Beginning at the intersection of the southern City limits and the Mississippi River, proceeding along the centerlines generally in a clockwise direction west and north to the railroad tracks, northeast to the River Des Peres, northwest to the Ozark Expressway, northeast to Koeln, west to Grand, north to Loughborough, east to Grand Drive, north through Carondelet Park to the road immediately south of Holly Hills, west to the southern prolongation of Livingston Drive, north to Bowen, east to Arendes, north to Wilmington, east to Grand, north to Bates, east to Idaho, north to Eiler, east to Alabama, north to Delor, east to Virginia, north to Delor, east to the Ozark Expressway, north to Broadway, south to Mt. Pleasant, east along the eastern prolongation of Mt. Pleasant to the Mississippi River, and south to the point of beginning.

PRESERVATION REVIEW DISTRICT NINE

Beginning at the intersection of the railroad tracks and the southern City limits, proceeding west and north along The City limits in a generally clockwise direction to the western prolongation of Loughborough, east to Hampton, north to Holly Hills, east to Carlsbad, north to Federer, east to Morganford, south to Holly Hills, east to Leona, south to Loughborough, east to Grand south to Koeln, east to the Ozark Expressway, southwest to the River Des Peres, southeast to the railroad tracks and southwest to the point of beginning.

PRESERVATION REVIEW DISTRICT TEN

Beginning at the intersection of the centerlines of Loughborough and Grand, and proceeding along the centerlines in a generally clockwise direction west to Leona, north to Holly Hills, west to Morganford, north to Bates, west to Gravois, northeast to Morganford, southeast to Walsh, east to Ray, north to Delor, east to Grand, north to Meramec, east to California, south to Broadway, south along Broadway to the Ozark Expressway, south to Delor, west to Virginia, south to Delor, west to Alabama, south to Eiler, west to Idaho, south to Bates, west to Grand, south to Wilmington, west to Amendes, south to Bowen, west to Livingston Drive, south along Livingston and its southern prolongation to the road through Carondelet Park south of Holly Hills Boulevard, east to Grand Drive, south to Loughborough, and west to the point of beginning.

PRESERVATION REVIEW DISTRICT ELEVEN

Beginning at the intersection of the centerlines of Sublette and Arsenal, and proceeding along the centerlines in a generally clockwise direction east to Kingshighway, north to Magnolia, east to Grand, south to Dunnica, west to Gustine, north to Chippewa, west to Holt, north to Tholozan, west to Bent, north to Utah, west to Morganford, south to Fyler, west to Kingshighway, north to Fyler, west to Sublette, and north to the point of beginning.

PRESERVATION REVIEW DISTRICT TWELVE

Beginning at the intersection of the western City limits and Interstate 44, and proceeding east along the centerlines in a generally clockwise direction to Wabash, south to Lindenwood, east to McCausland, south to Bancroft, east to Chippewa, east to Macklind, south to Eichelberger, east to Kingshighway, south to Holly Hills, west to Hampton, south to Loughborough, west along

Loughborough and its western prolongation to the city limits, and west and north to the point of beginning.

PRESERVATION REVIEW DISTRICT THIRTEEN

Beginning at the intersection of the centerlines of Kingshighway and Lindell, and proceeding in a generally clockwise direction east along the centerlines to Taylor, north to Maryland, east to Boyle, south to West Pine, east to Sarah, south to Laclede, east to Spring, south to Market, east to Grand, north to the Forest Park Parkway, east to Compton, south to Chouteau, west to Grand, south to Park, west to 39th, south to Blaine, west to Tower Grove, south to Interstate 44, west to Kingshighway, north to the St. Louis & San Francisco Railway tracks, west to Hampton, north to Manchester, west to Graham, north to Oakland, east to the southern prolongation of Euclid, north to Barnes Hospital Plaza, west to Kingshighway, and north to the point of beginning.

PRESERVATION REVIEW DISTRICT FOURTEEN

Beginning at the intersection of the centerlines of Marcus and Leduc, and proceeding in a generally clockwise direction west to Euclid, south to Cote Brilliante, west to Kingshighway south to Cote Brilliante, west to Union, north to Lexington, west to Arlington, north to Natural Bridge, east to Union, north to Brown, east to Geraldine, south to Brown, east to Kingshighway, north to Penrose, northeast along the road through Penrose Park to Euclid, north to the Mark Twain Expressway, east to Shreve, northeast to West Florissant, east to the northeastern prolongation of Dryden, southwest and south to Lee, southwest to Cora, south to Margaretta, west to Marcus, and south to the point of beginning.

PRESERVATION REVIEW DISTRICT FIFTEEN

Beginning at the intersection of the western City limits and Interstate 44, and proceeding along the centerlines in a generally clockwise direction north to the Missouri Pacific Railroad tracks, northeast to Ellendale, south to Arsenal, east to the St. Louis and San Francisco Railway tracks, north to Southwest, east to Columbia, east to Clifton, south to Southwest, southeast to Hampton, south to Arsenal, east to Sublette, south to Fyler, west to Regal, south to Chippewa, west to Bancroft, west to McCausland, north to Lindenwood, west to Wabash, north to Interstate 44, southwest to the City limits, and north to the point of beginning.

PRESERVATION REVIEW DISTRICT SIXTEEN

Beginning at the intersection of the western City limits and the Daniel Boone Expressway, and proceeding along the centerlines in a generally clockwise direction northeast to Oakland, east to Graham, south to Manchester, east to Hampton, south to the St. Louis and San Francisco railroad tracks, east to Kingshighway, south to Southwest, southwest to Brannon, south to Arsenal, west to Hampton, north to Southwest, west to Clifton, northwest to Columbia, south to Southwest, west to the St. Louis and San Francisco railroad tracks, southwest to Arsenal, west to Ellendale, north to the Missouri Pacific Railroad tracks, southwest to the City limits, and north to the point of beginning.

PRESERVATION REVIEW DISTRICT SEVENTEEN

Beginning at the intersection of the centerlines of Grand and Dunnica, and proceeding along the center-lines in a generally clockwise direction south to Osage, east to Minnesota, south to Gasconade, east to California, south to Meramec, west to Grand, south to Delor, west to Gustine, north to the railroad tracks, northwest to Gravois, northeast to Meramec, northwest to Chippewa, west to Ridgewood, north to Beck, west to Kingshighway, south to Chippewa, west to Regal Place, north to Fyler, east to Kingshighway, south to Fyler, east to Morganford, north to Utah, east to Bent, south to Tholozan, east to Holt, south to Chippewa, east to Gustine, south to Dunnica, and east to the point of beginning.

PRESERVATION REVIEW DISTRICT EIGHTEEN

Beginning at the intersection of the centerlines of the Bi-State Metrolink Right-of-Way (formerly the Wabash Railroad tracks) and Maple, and proceeding along the centerlines in a generally clockwise direction west to the City limits, northeast to Etzel, east to Page, southeast to Belt, north to Dr. Martin Luther King, east to Union, north to Cote Bril-

liante, east to Kingshighway north to Cote Brilliante, east to Euclid, north to Leduc, east to Marcus, south to Page, west to Union, south to the private alley between Delmar and Washington Terrace, west along said all alley and its westward prolongation to Clara, south to Kingsbury Place, west to DeBaliviere, south McPherson, west to Laurel, north to Washington, west along Washington and its westward prolongation to the southern prolongation of Hamilton, north to Delmar, west to the Bi-State Metrolink Right-of-Way (formerly the Wabash Railroad tracks), and northwest to the point of beginning.

PRESERVATION REVIEW DISTRICT NINETEEN

Beginning at the intersection of the centerline of Northcrest and the City limits, and proceeding along the centerlines in a generally clockwise direction south to Veronica, west to Goodfellow, southwest to Oxford Lane, south to Switzer, west to Goodfellow, south to the railroad tracks, east to Riverview, south to West Florissant, southeast to Emerson, southwest to Lilian, northwest to Genevieve, southwest to the Mark Twain Expressway, west to the western City limits, and north and east along the City limits to the point of beginning.

PRESERVATION REVIEW DISTRICT TWENTY

Beginning at the intersection of Maple and the western City limits, and proceeding along the centerlines in a generally clockwise direction east to the Bi-State Metrolink Right-of-Way (formerly the Wabash Railroad tracks), southeast to Delmar, east to Hamilton, south along Hamilton and its southward prolongation to the westward prolongation of Washington, east along said prolongation of Washington and Washington to Laurel, south to McPherson, east to De Baliviere, north to Kingsbury Place, east to Clara, north to the private alley between Washington Terrace and Delmar, east along said alley and its eastward prolongation to Union, north to Delmar, east to Kingshighway, south to Washington, east to Olive, southeast to Boyle, south to Maryland, west to Taylor, south to Lindell, west to Kingshighway, south to Barnes Hospital Plaza, east to Euclid, south along the southern prolongation of Euclid to Oakland, west to the Daniel Boone Expressway, southwest to the City limits, and north to the point of beginning. (Ord. No. 64832, exh. A, 1999.)

Editor's Note:

Ord. No. 64832, codified above, contained the following preamble:

WHEREAS, the Board of Aldermen of the City finds and declares that portions of the City of St. Louis contain a stock of well designed and marketable residential and commercial buildings which are characterized by certain unique architectural styles and quality construction and that such evaluation of these is a legitimate function of the Cultural Resources Office in performing their duties under the City Code;

WHEREAS, this building stock imparts a distinct and distinguished appearance to St. Louis which is of benefit to residents and attractive to visitors;

WHEREAS, often unnecessary demolitions erode the areas building stock and contribute to a degradation of property values of adjacent properties;

WHEREAS, adaptive reuse of residential and commercial buildings in St. Louis has often proved to be an economically feasible and profitable alternative to demolition;

WHEREAS, in many cases the design of proposed new construction is not compatible with existing older buildings; and that such evaluation is a legitimate function of the Cultural Resources Office in performing their duties under the City Code.

WHEREAS the Cultural Resources Office and the Preservation Board have conducted an assessment of the proposed districts as required by Ordinance 64689 and the Cultural Resources Office has prepared a Map of Cultural Resources for the portions of the City of St. Louis identified by the boundaries of the proposed Preservation Review Districts; and

WHEREAS, Public Notice has been provided to the residents and property owners of the area;

WHEREAS, this Board of Aldermen hereby finds that passage of this ordinance is in the best interest of the City of St. Louis and that residential and commercial property owners and tenants in the proposed Preservation Review Districts will benefit by establishment of a Preservation Review District and the conservation of the built environment in said Preservation Review District.

Chapter 24.44

RESERVED

Editor's Note:

Ord. No. 68049, § 2, adopted Feb. 14, 2011, repealed Ch. 24.44, §§ 24.44.010—24.44.060, which pertained to outdoor general advertising devices and derived from Ord. No. 60704, §§ 2—5, 7, 1988; Ord. No. 62701, §§ 1, 2, 1992; and Ord. No. 63227, § 2, 1994.

Chapter 24.48

ADMINISTRATION AND ENFORCEMENT

Sections:

24.48.010 Administration.
24.48.020 Enforcement—Generally.
24.48.030 Penalty for violation—Generally.
24.48.040 Savings provision.

24.48.010 Administration.

The Preservation Board with the prior approval of the Planning Commission may issue regulations consistent with this title to facilitate administration of this title. Copies of any such regulations shall be made available for the public in the office of the Preservation Board and furnished to the City Register. (1994 C., § 24.48.010; Ord. No. 64689, § 65, 1999.)

24.48.020 Enforcement—Generally.

The Preservation Board and the Cultural Resources Office shall each have the power to enforce this title and to restrain any violation thereof. In addition to other available remedies, the Preservation Board may institute any appropriate action or proceeding in the name of the City to restrain any construction, alteration or demolition in violation of this title, to correct or abate any such violation or otherwise to enforce this title. The City Counselor shall represent the Preservation Board in any such suit at the request of the Preservation Board. (1994 C., § 24.48.020; Ord. No. 64689, § 66, 1999.)

24.48.030 Penalty for violation—Generally.

Every person convicted of a violation of any provision of this title shall be subject to the punishment set forth in Section 1.12.010 of the Municipal Code. Each day that any violation shall continue shall constitute a separate offense. (1994 C., § 24.48.030; Ord. No. 64689, § 67, 1999.)

24.48.040 Savings provision.

Any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before the effective date of the ordinance codified in this title shall not be affected by this title; but every act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes as if prior law had remained in full force and effect. No offense committed and no liability or penalty incurred prior to the effective date of said ordinance, shall be discharged or affected by this title; but prosecutions and suits for such offenses, liabilities or penalties shall be instituted and proceeded with in all respects as if this chapter had not taken effect. (1994 C., § 24.48.040; Ord. No. 64689, § 68, 1999.)

Title 25

BUILDINGS AND CONSTRUCTION

Requirement for summary of license and permit applications, see §§ 3.02.030—3.02.050.

Charter:

Art. I § 1(29) Construction of buildings and maintenance of premises

Art. XIII § 15(e) Division of building and inspection

Chapters:

25.01 Building Code
25.02 Electrical Code
25.03 Mechanical Code
25.04 Plumbing Code
25.05 Board of Building Appeals
25.06 International Fire Code
25.07 Fuel Gas Code
25.08 Information to Be Given to Building Commissioner
25.09 Protective Systems
25.10 Mechanical Code
25.11 Residential Code
25.12 Contractors to Post Signs
25.13 Energy Conservation Code
25.16 Flood Damage Building Precautions
25.20 Existing Building Code
25.32 International Property Maintenance
25.33 Enforcement of Code Violations
25.36 Smoke Houses
25.40 Theatrical Barges
25.44 Trailer Parks
25.48 Certificates of Use and Occupancy
25.52 Smoke Detectors
25.56 Housing Conservation Districts
25.57 Short-Term Rental Ordinance
25.60 Carbon Monoxide Detectors
25.62 Repair Permit Issuance
25.64 Demolition, Repair, Board Up or Clean Up—Costs
25.66 Fire, Explosion or Other Casualty—Costs
25.70 Building Energy Awareness
25.71 Building Energy Performance Standards
25.74 Utility Coordination
25.76 Small Wireless Facilities and Micro Wireless Facilities
25.78 Impacted Tenants' Fund
25.80 Safe Temperature in Rentals
25.82 Mold in Rental Dwelling Units
25.84 Occupancy Law

Chapter 25.01

BUILDING CODE

Editor's Note:

Ord. No. 70794, adopted July 18, 2018, adopting the 2018 International Building Code with amendments, including Appendices E, F, G, H, I and J, repealed Ordinance No. 68610, Ordinance No. 68788, and Ordinance No. 69271. Ord. No. 68788, adopted Nov. 8, 2010, repealed Ch. 25.01 and enacted a new chapter. The former Ch. 25.01, §§ 25.01.010—25.01.760, pertained to similar subject matter and derived from Ord. No. 66790, §§ 2—4, 2005; Ord. 66859 § 1, 2005; Ord. 67325 § 1, 2006; Ord. 67396 § 3, 2007; and Ord. No. 68610, §§ 2—9, 3-16-2010.

Prior ordinance history: Ords. 50502, 56797, 57023, 57236, 57245, 57301, 57551, 57680, 57857, 58032, 60604, 63610, 63703, 63908, 64178, 64655, 64677—64681, 64771, 65204, 65481 and 65925

Sections:

25.01.010 Adopted.
25.01.020 Amendments.
25.01.030 Penalty.

25.01.010 Adopted.

The 2018 International Building Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Building Code, including Appendices E, F, G, H, I, and J, is hereby adopted as the Building Code of the City of Saint Louis, in the State of

Missouri, pursuant to this chapter and in conformity with Section 71.943 RSMo for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Building Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.01.020. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 70794, § 2, 7-18-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.01.020 Amendments.

The 2018 International Building Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add a new Chapter 1 to read as follows:

CHAPTER 1

SCOPE AND ADMINISTRATION

SECTION 101 GENERAL

101.1 Title. These regulations shall be known as the Building Code of the City of Saint Louis, hereinafter referred to herein as "this code."

101.2 Scope. The provisions of this code shall apply to the grading, excavation, new construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of all buildings, structures, and premises in the City of Saint Louis except as such matters are otherwise provided for in the Charter of the City of Saint Louis or other ordinances, statutes, or in the rules and regulations authorized for promulgation under the provisions of this code.

Exceptions:

1. Live/work units complying with the requirements of Section 419 shall be permitted to be built in accordance with the Residential Code for One- and Two-family Dwellings. Fire suppression required by Section 419.5, when constructed under the Residential Code for One- and Two-Family Dwellings, shall conform to Section 903.3.1.3.

2. Owner-occupied lodging houses with five or fewer guest rooms shall be permitted to be constructed in accordance with the Residential Code for One- and Two-family Dwellings where equipped with a fire sprinkler system in accordance with Section 903.3.1.3.

3. Existing buildings undergoing repair, alteration or additions, and change of occupancy shall be permitted to comply with the Existing Building Code.

4. Detached one- and two-family dwellings and townhouses with a separate means of egress and their accessory structures not more than three stories above grade plane in height shall be permitted to comply with the Residential Code for One-and Two-family Dwellings.

101.3 Intent. The purpose of this code is to establish the minimum requirements to safeguard the public health, safety, and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide a reasonable level of safety to fire fighters and emergency responders during emergency operations.

SECTION 102 APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

102.2 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law. Where the provisions of this code conflict with other ordinances or regulations, the most stringent requirements shall apply. The building official shall not be the enforcement officer for such other ordinances or regulations unless specified therein.

102.3 Application of References. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this code.

102.4 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2. Referenced standards shall be permitted to be updated by rule making authority of the building official.

Exception: Where enforcement of a code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing and manufacturer's instructions shall apply.

102.4.1 Conflicts. Where conflicts occur between provisions of this code and referenced codes and standards, the provisions of this code shall apply.

102.4.2 Provisions in Referenced Codes and Standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within

the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard.

102.5 Appendices. Provisions of the appendices shall not apply unless specifically referenced in the adopting ordinance.

102.6 Partial Invalidity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.7 Existing Structures. The legal occupancy of any structure existing on the date of the adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the Existing Building Code, the Property Maintenance Code, or the Fire Code, or as deemed necessary by the building official for the general safety and welfare of the occupants and the public.

102.7.1 Additions, Alterations or Repairs. Additions, alterations, or repairs to any structure shall conform to that required for a new structure without requiring the existing structure to comply with all of the requirements of this code, unless otherwise stated. Additions, alterations, repairs, and relocations shall not cause an existing structure to become unsafe or adversely affect the performance of the building.

102.7.2 Buildings Not Previously Occupied. A building or portion of a building that has not been previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of this code for new construction or with any current permit for such occupancy.

102.8 Matters Not Provided For. Any requirements that are essential for structural, fire, or sanitary safety of an existing or proposed building or structure, or for the safety of the occupants thereof, and which are not specifically provided for by this code, shall be determined by the building official.

The building official shall be permitted to delegate to the Department of the President, Board of Public Service, responsibility for code compliance inspections on projects within the City limits let by the Board of Public Service or let as an Emergency Agreement. If such delegation is made, that office shall certify in writing to the building official at the completion of the project that they did inspect and believe the project to comply with this code.

102.9 Buildings, Structures, or Premises Partly Within City *Limits.* When a building, structure, or premises is constructed partly within the City and partly within county limits, the Building Commissioner shall be authorized to enter into agreements with the adjoining code jurisdictions to avoid duplications of inspections, fees, and permits.

102.10 Restrictions. No building or structure shall be constructed, extended, repaired, removed, altered or occupied in violation of these provisions, except for repairs as defined in Section 105.2.2, and except further that the raising, lowering or moving of a building or structure as a unit necessitated by a change in legal grade or widening of a street shall be permitted, provided the building or structure is not otherwise altered or its occupancy changed. Political subdivisions of the State of Missouri, including, but not limited to, the Board of Education, Metropolitan Sewer District, Saint Louis Housing Authority, Saint Louis Police Department, Metro Transit, Planned Industrial Expansion Authority, Land Clearance for Redevelopment Authority, Land Reutilization Authority, Saint Louis Development Corporation, and the Regional Convention and Sports Complex Authority are covered under the provisions of this code for all property within the City limits.

Exceptions:

1. Structures owned and occupied by the United States of America or the State of Missouri.
2. City of Saint Louis-owned property located outside of the City Limits.
3. Existing building occupancies that are licensed by the State of Missouri as family child care homes providing home day care, as specified in Section 310.3.
4. Structures located within cemetery boundaries which are less than 1,000 square feet in area and less than 20 feet in height, measured from grade to the highest point.
5. Laying or relaying of railroad trackage sidings and their appurtenant signals, culverts and structures.
6. A construction project located in the public right-of-way (R.O.W.).

SECTION 103 DIVISION OF BUILDING AND INSPECTION

103.1 Creation of Enforcement Agency. There is hereby created the Division of Building and Inspection. The Division shall consist of Sections, including, but not limited to: Administration Section, Building

Inspection Section, Central File Section, Court Section, Electrical Inspection Section, Mechanical Inspection Section, Permit Section, Plan Exam Section, Plumbing Inspection Section, and Zoning Section.

103.2 Building Commissioner. The head of the Division of Building and Inspection shall be known as the Building Commissioner, in accordance with Section 15, Article 13 of the Charter of the City of Saint Louis.

103.2.1 Appointment; qualifications. The Building Commissioner, also herein referred to as the building official, shall be a Missouri licensed professional architect, or, a Missouri licensed professional engineer, or, shall have a bachelors degree in an appropriately related field with Certified Building Code Official status, or, shall have a masters degree in an appropriately related field and five years' experience in building code enforcement at a senior management level. The Building Commissioner shall be appointed by the Director of Public Safety.

103.3 Organization. The building official shall appoint such numbers of architects, engineers, technical assistants, inspectors and other employees such as clerks, typists, and cashiers as shall be necessary for the administration of the codes governed by this chapter, and as authorized by the building official in conformance with Civil Service qualifications and regulations. The building official shall be permitted to delegate appropriate subordinates to act in the exercise of the duties of this code, and they also shall be designated as building officials. The building official is authorized to designate employees as needed who shall exercise all the powers of the building official during the temporary absence or disability of the building official.

103.4 Restriction of Employees. An official or employee connected with the Division of Building and Inspection, except one whose only connection is that of a member of the Board of Building Appeals, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building, or the preparation of construction documents therefor, unless that person is the owner of the building, or a first degree relative of the owner of the building; nor shall such officer or employee engage in any work which conflicts with official duties or with the interests of the Division of Building and Inspection.

Further, no Building Division employee shall be employed by or serve as an employee of any other division within the City service unless a formal request is made by the Building Commissioner to and approved by the appointing authority of that Division.

SECTION 104 DUTIES AND POWERS OF THE BUILDING OFFICIAL

104.1 General. The building official is hereby authorized and directed to enforce the provisions of this code. The building official shall have the authority to render interpretations of this code and adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall be in conformance with the intent and purpose of this code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

104.1.1 Rule Making Authority. The Building Commissioner shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code, to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code or violating accepted engineering practice involving public safety.

104.1.2 Accepted Engineering Practice. In the absence of provisions not specifically contained in this code, the regulations, specifications, and standards listed under referenced standards shall be deemed to represent accepted engineering practice in respect to materials, equipment, systems, or methods of construction.

104.2 Applications and Permits. The building official shall receive applications; review construction documents; issue or deny permits for the erection, alteration, demolition, moving, or occupancy of buildings, structures, or premises; inspect the premises for which such permits have been issued; and enforce compliance with the provisions of this code.

104.2.1 Preliminary Meeting. When requested by the permit applicant, the building official shall meet with the permit applicant to discuss plans for the proposed work or change of occupancy prior to the application for a permit in order to establish the specific applicability of the provisions of this code.

104.2.1.1 Building Evaluation. The building official is authorized to require an existing building to be investigated and evaluated by a licensed design profes-

sional based on the circumstances agreed upon at the preliminary meeting. The design professional shall notify the building official if any potential nonconformance with the provisions of this code is identified.

104.3 Notices and Orders. The building official shall issue all necessary notices or orders to ensure compliance with this code.

104.4 Inspections. The building official is authorized to make all of the required inspections, or the building official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority. The owner shall provide such special inspections as are required by the building official.

104.5 Identification. The building official shall carry proper identification when inspecting structures, or premises in the performance of duties under this code.

104.6 Right of Entry. Where it is necessary to make an inspection to enforce the provisions of this code or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous, or hazardous, the building official or designee is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this code, provided that if such structure be occupied, that credentials be presented to the occupant and entry requested. If such structure or premises be unoccupied, the building official shall first make a reasonable effort to locate the owner, owner's authorized agent, or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall have recourse to the remedies provided by law to secure entry.

104.6.1 Disasters. In the event of a disaster such as windstorm, tornado, flood, fire, earthquake, bomb blast, or explosion, the building official is hereby authorized to enter and inspect structures within the affected area, subject to constitutional restrictions on unreasonable searches and seizures. When, in the opinion of the building official, there is imminent danger of an unsafe condition, the building official shall take emergency measures in accordance with this code. If the building official determines, after inspection, that a structure is unfit, the building official shall declare it a public nuisance, cause a report to be prepared, and notify the affected parties in accordance with this code.

104.6.1.1 Post-Disaster Inspections. The building official is authorized to deputize Missouri Structural Assessment and Visual Evaluation (SAVE) Volunteer Inspectors certified by the Missouri State Emergency Management Agency (SEMA) to conduct emergency post-disaster safety evaluations of buildings.

104.7 Department Records. An official record shall be kept of all business and activities of the department specified in the provisions of this code, and all such records shall be open to public inspection at all appropriate times.

A reasonable charge shall be established for making copies of documents. If staff time is required to assemble requested data, an estimate shall be made of personnel charges, including fringe benefits, and a signed agreement made prior to undertaking such projects. The Division of Building and Inspection is not obligated to assemble data into formats that it does not use or need in the ordinary prosecution of its work.

Further, whenever any person, firm, or corporation requests a comprehensive historical investigation of the Division of Building and Inspection records relating to building or occupancy permits, an application fee of $25.00 shall be charged as specified in Section 108.2.1 in addition to all other fees as provided in other sections of this code.

104.8 Liability. The building official, member of the Board of Building Appeals, or employee charged with the enforcement of this code, while acting for the City of Saint Louis in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered civilly or criminally liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties.

104.8.1 Legal Defense. Any suit or criminal complaint instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordi-

nates shall not be liable for cost or judgment in any action, suit or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

104.9 Approved Materials and Equipment. Materials, equipment, and devices approved by the building official shall be constructed and installed in accordance with such approval.

104.9.1 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless they have been reconditioned, tested, and placed in good and proper working condition and approved by the building official.

104.10 Modifications. Wherever there are practical difficulties involved in carrying out provisions of this code, the building official shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative, provided the building official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life, and fire safety or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the Division of Building and Inspection.

104.10.1 Flood Hazard Areas. The building official shall not grant modifications to any provisions required in flood hazard areas unless a determination has been made that:

1. There is good and sufficient cause showing that the unique characteristics of the size, configurations, or topography of the site render the elevation standards of this code inappropriate.

2. Failure to grant the modification would result in exceptional hardship by rendering the lot undevelopable.

3. The granting of modification will not result in increased flood heights, additional threats to public safety, or extraordinary public expense; cause fraud on or victimization of the public; or conflict with existing laws or ordinances.

4. The modification is the minimum necessary to afford relief considering the flood hazard.

5. Written notice has been submitted to the applicant specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

104.11 Alternative Materials, Design, and Methods of Construction, and Equipment. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided any such alternative has been approved. An alternative material, design or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety.

104.11.1 Research Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

104.11.2 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the building official shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for the retention of public records.

104.11.3 Research and Investigations. The building official shall require that sufficient technical data be submitted to substantiate the proposed use of any ma-

terial or assembly, and if it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the building official shall approve its use subject to the requirements of this code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant or owner.

104.12 Annual Report. The Building Commissioner shall submit to the Director of Public Safety a written annual report.

SECTION 105 PERMITS

105.1 Required. Any owner or owner's authorized agent who intends to perform site grading or excavation; to construct, enlarge, alter, make non-ordinary repairs to, move, or demolish a building or structure; to change the occupancy of a building, structure, or premises from one use group to another or to change to a prohibited use; or to cause any such work to be done; or to use explosives for blasting in connection with demolition, excavation, construction, or other building operation shall first make application to the building official and obtain the required permits.

Exception: No permit shall be issued to repair any building or structure condemned in accordance with Section 119 or 120 if such building or structure is included in an executed contract for demolition between the City of Saint Louis and a demolition contractor.

105.1.1 Preservation Board Permit Requirements. When the ordinances of the Cultural Resources Office (CRO) of the Planning and Urban Design Agency (PUDA) require a permit for items for which this code does not require a permit, applications shall be permitted to be taken by the Division of Building and Inspection and processed solely to the Cultural Resources Office. Both the Building Commissioner and the Cultural Resources Office Director are authorized to place stop work orders. Any appeals or court actions resulting from such citations, applications, or permits shall have technical and aesthetic testimony from the Preservation Board and the staff of the Cultural Resources Office.

105.1.2 Cultural Resources Office Denial. Unless overruled by the Building Commissioner as a result of an emergency situation or the Planning and Urban Design Commission, a denial from the Preservation Board shall be the final denial; no further notice from the building official shall be required to any person.

105.2 Work Exempt From Permit. Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of the City of Saint Louis. Permits shall not be required for the following:

1. Tuckpointing, ordinary or minor repair to exterior masonry, exterior painting, or similar repair or finish work;
2. Repair or replacement of existing gutters or above-grade portions of downspouts;
3. Recovering or replacing roof covering with the same type of roof covering to a maximum of two layers of roofing. Roofs having a pitch of ¼: 12 or greater but less than 4:12 (low slope roof) shall provide positive drainage. Replacement of 25% or less of roof sheathing;
4. Resealing or restriping of an existing paved parking parking lot, provided the restriping done matches the existing configuration and the number of spaces remain the same. A permit is required to restripe a parking lot for a new parking space and drive arrangement or configuration;
5. Miscellaneous site work, landscaping, gardens, shrubbery, or planting boxes; excavation or fill that does not create a permanent change in property elevation of more than six inches along property lines, block drainage, or create erosion or damage to adjacent properties;
6. Replacement of existing fencing of the same height, material, and location except when enclosing swimming pools, hot tubs, or spas;
7. Retaining walls eighteen inches or less in height above lowest adjacent grade;
8. Tents smaller than 1,000 square feet, or those used for private family events on the same lot as the owner's residence;
9. Statues on private property, erected on grade, not attached to or part of a building or structure;
10. Relining, repairing, patching or shotcreting existing swimming pool walls or floors provided required minimum water depths under diving boards, if present, are maintained;
11. Ordinary or minor repairs to exterior cantilevered balconies, decks, stairs, and fire escapes such as patching or replacing small areas of treads, risers, and platform surfaces; repairing or replacing components such as handrails, tread and riser, guardrail balusters,

etc., on existing balconies, stairs and decks with like-for-like materials as long as it does not affect the structural components of the exterior cantilevered balconies, decks, stairs, or fire escapes;

12. Interior painting, floor sanding and refinishing, floor tile or carpeting, replacement of flooring with like material, application of wallpaper and other wall covering material, moveable cases, counters and partitions, and cabinet installation, counter tops, and similar finish work;

13. Plaster patching or gypsum board replacement not exceeding 25% of the total wall or ceiling area of a room or space provided the fire rating and moisture resistance is maintained and no modifications are made;

14. Wall paneling of any type when applied directly to existing room wall surfaces;

15. Installing or replacing ceiling tile of any type, other than foam plastic, when applied directly to existing ceiling surfaces, except when within assembly rooms with more than 300 occupants, institutional rooms or spaces, and corridors or exit stairways of any use. Replacing damaged lay-in ceiling panels with like materials up to 25% of a room or space and a maximum of 500 square feet;

16. Nonfixed or moveable fixtures, cases, racks, counters and partitions not over 5 feet, nine inches in height;

17. Foundation and floor slab repair such as patching/filling of cracks of up to ¼ inch in walls and ⅜ inch in slabs, waterproofing, etc., provided the building is otherwise structurally sound and plumb.

Additionally, for 1- and 2-family dwellings and multiple-family properties with no more than four units, permits shall not be required for the following:

18. Swings and other backyard playground equipment including basketball goals and standards;

19. New aluminum, steel, fiber cement, hardboard, or vinyl exterior siding with no change to existing openings. Replacement of 25% or less of the wall sheathing;

20. Application of pre-finished aluminum, steel, vinyl, or like materials on soffits, fascia boards, rake boards, or overhangs;

21. Replacement or repair of exterior or interior doors or frames, provided the fire rating, when applicable, is maintained, and no modification is made to the opening;

22. Replacement or repair of existing windows and frames, whenever no modification is made to the opening; installation of storm windows and doors, whenever no modification is made to the opening; glazing and glass replacement;

23. Awnings which do not project over property lines, and not over 40 square feet in projected area;

24. Exterior ramps, stairs, or steps which are on grade and not more than twelve inches above adjacent grade, not attached to the structure, and within property lines;

25. Sidewalks and driveways within property lines; paved areas on the same lot as the primary structure, without roofs, covers, or enclosures; concrete patio slabs or wooden patios/decks which rest directly on the ground or a rock base, provided that they are not covered by a roof or canopy, not supported by any type of permanent foundation, and a maximum of twelve inches above adjacent grade;

26. Small detached accessory buildings, such as utility/storage/tool sheds, cabanas, play houses, etc., 120 square feet in area or less and less than twelve feet in height, provided the utility shed is placed on and anchored to a minimum four-inch-thick concrete slab and maintains the setbacks required by the Zoning Ordinance. This does not include accessory buildings having unique uses such as barbeque or smoke houses, storage of fuel or other hazardous material, structures containing fuel fired equipment, and other uses that present an increased fire hazard or nuisance to adjoining property. A permit is required for all buildings housing these types of uses exceeding 50 square feet in area;

27. Residential accessory structures such as arbors, garden trellises, or other minor structures, provided such structures maintain the setbacks required by the Zoning Ordinance;

28. Non-dish radio or television antennae twelve feet or less in height, mounted on the ground, not in the front yard area, attached to, or on the roof of a building. Dish antennas two feet in diameter or less installed on grade or on the roof, provided such antennae maintain the setbacks required by the Zoning Ordinance;

29. Above-ground swimming pools, or hot tubs or spas placed on a slab. Also, in-ground swimming pools with less than 24 inches water depth with a surface area of less than 250 square feet. All pools, hot tubs, and spas shall maintain the setbacks required by the Zoning Ordinance;

30. Installation of battery-operated smoke detectors.

Exceptions:

1. Work involving repair of flood, earthquake, or other natural disaster damage.

2. A floodplain development permit is still required to be obtained if the site is located in the floodplain areas defined by FEMA.

3. Ordinary repairs or minor work to buildings and structures which fall under the purview of the Cultural Resource Office requiring "Cultural Resource Office Only" permits.

105.2.1 Emergency Repairs. Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day to the building official.

105.2.2 Repairs. Application or notice to the building official is not required for ordinary repairs to structures, replacement of lamps, or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition, or portion thereof; the removal or cutting of any structural beam or load bearing support; or the removal or change of any required means of egress or rearrangement of parts of a structure affecting the egress requirements. Ordinary repairs also shall not include addition to or alteration, replacement, or relocation of any water supply, sewer, drainage, drain leader, gas, soil, waste, vent, or similar piping; electric wiring; or mechanical or other work affecting public health or general safety.

105.2.3 Public Service Agencies. A permit shall not be required for the installation, alteration, or repair of generation, transmission, distribution, metering, or other related equipment that is under the ownership and control of public service agencies by established right.

105.2.4 Damaged Building Repair. Buildings that are determined by the building official to have sustained light building damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction drawings showing the scope of work and a report prepared, sealed, signed, and dated by a Missouri licensed design professional stating that the building damage is light with no structural damage. Construction drawings may be prepared by a person who is not a Missouri licensed design professional.

Buildings that are determined by the building official to have sustained moderate or serious building damage or structural damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction documents prepared, sealed, signed, and dated by a Missouri licensed design professional.

105.2.4.1 Condemned for Occupancy or Condemned for Demolition Building Repair. Repairs to buildings that are determined by the building official to be condemned for occupancy or condemned for demolition shall require a building permit with construction documents prepared, sealed, and signed by a Missouri licensed design professional.

105.2.5 Maintenance. All buildings, structures, and premises and all parts thereof, both existing and new, shall be maintained in a safe and sanitary condition. All service equipment, means of egress, devices, and safeguards required by this code or a previous code or ordinance at the time a building or structure was erected, altered, or repaired shall be maintained in good working order.

105.2.6 Owner Responsibility. The owner(s) or the owner's agent shall be responsible for the safe and sanitary maintenance of the building, structure or premises and its means of egress facilities at all times.

105.3 By Whom Application Is Made. Application for a permit shall be made by the owner or lessee of the building or structure, or agent of either, or by the Missouri licensed design professional employed in connection with the proposed work. The full names, addresses, and telephone numbers of the owner, lessee, and applicant shall be stated in the application. Every application shall have a local contact person listed. Demolition and occupancy permit applications, when applied for by anyone other than the owner of record, shall be accompanied by a notarized letter of authorization or other documentation from the owner of record granting permission to apply.

105.3.1 Application for Permit. To obtain a permit, the applicant shall first file an application on a form furnished by the Division of Building and Inspection for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.

2. Describe the land on which the proposed work is to be done by legal description, street address, or similar description that will readily identify and definitely locate the proposed building or work.

3. Indicate the use and occupancy for which the proposed work is intended.

4. Be accompanied by construction documents and other information as required in Section 107.

5. State the estimated cost of construction of the proposed work.

6. Be signed by the applicant, or the applicant's authorized agent.

7. Give such other data and information as required by the building official.

105.3.2 Action on Application. The building official shall examine or cause to be examined applications for permits and amendments thereto. If the application or the construction documents do not conform to the requirements of all pertinent laws, the building official shall reject such application in writing, stating the reasons therefor. If the building official is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the building official shall issue a permit. The building official shall rely upon other City agencies to review for compliance with their ordinance requirements.

105.3.2.1 Determination of Substantially Improved or Substantially Damaged Existing Buildings in Flood Hazard Areas. For applications for reconstruction, rehabilitation, addition, alteration, repair, or other improvement of existing buildings or structures located in a flood hazard area, the building official shall examine the construction documents and shall make a determination of the value of the proposed work. For buildings that have sustained damage of any origin, the value of the proposed work shall include the cost to repair the building or structure to its pre-damaged condition. If the building official finds that the value of the proposed work is 50% or more of the market value of the building or structure before the damage has occurred or the improvement is started, the proposed work shall be considered a substantial improvement or restoration of substantial damage and the building official shall require existing portions of the entire building or structure to meet the requirements of this code.

Where the building or structure has sustained substantial damage, repairs necessary to restore the building or structure to its pre-damaged condition shall be considered substantial improvements regardless of the actual repair work performed. The term shall not include either of the following:

1. Improvements to a building or structure that are required to correct existing health, sanitary, or safety code violations identified by the building official and that are the minimum necessary to ensure safe living conditions.

2. Any alteration of an historic building or structure provided that the alteration will not preclude the continued designation as an historic building or structure.

A. Listed or preliminarily determined to be eligible for listing in the National Register of Historic Places; or

B. Determined by the Secretary of the U.S. Department of Interiors as contributing to the historical significance of a registered historic district or a district preliminarily determined to qualify as an historic district; or

C. Designated as historic under a state or local historic preservation program that is approved by the Department of the Interior.

105.3.3 Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned six months after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except that the building official is authorized to grant one or more extensions of time for additional periods not exceeding 90 days each if the building official deems that there is reasonable cause and if a written request is received from the applicant for the extension prior to the expiration date.

105.3.4 Time Limitation on Approval. When an application for a permit has been approved by the building official and a permit has not been issued, the application shall be deemed to have been abandoned three months after the approval date. A notice of abandonment shall be sent to the applicant of record at least two weeks prior to the abandonment of the application.

Applicants who have a record of abandoned permit applications shall be required on all future permits to pay the application fee and the full permit fee upon application until such time as the abandoned permits have been reapplied for and approved and all applicable fees have been paid.

105.3.5 Action on Application for Permit to Use Explosives. When it is deemed proper, safe and advisable, the building official shall, upon receipt of application, issue permits for the use of explosives for blasting in connection with demolition, excavation, construction or other building operations. Without such permit, the use of explosives for the above-mentioned purposes is hereby prohibited. Additional permits shall be required under the Fire Code.

105.3.6 Information on the Permit. The building official shall issue all permits required by this code on an approved form furnished for that purpose. The permit shall contain a general description of the operation or occupancy and its location and any other information required by the building official. Issued permits shall bear the signature of the building official or other approved legal authorization.

105.4 Validity of Permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this code or of any other ordinance of the City of Saint Louis. Permits presuming to give authority to violate or cancel the provisions of this code or other ordinances shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is also authorized to prevent occupancy or use of a structure where in violation of this code or any other ordinance of the City of Saint Louis.

105.5 Expiration. All permits shall be issued in the name of the property owner of record for a period of six months unless noted otherwise. Permits shall be permitted to be extended for additional six-month periods if work is progressing and a written request from the owner for the extension is received by the building official prior to the expiration of each permit. Any permit issued shall become invalid if the authorized work is not commenced within six months after issuance of the permit, or if the authorized work is suspended or abandoned for a period of six months after the time of commencing the work; except that the building official shall be permitted to grant one or more extensions of time for additional periods not exceeding six months each if the building official deems that there is reasonable cause, and if a written request is received from the owner for the extension prior to the expiration date. No permit shall be extended if, after six months from issuance of said permit, no work has begun and the Board of Aldermen has passed an ordinance that would make all or part of the work thereon illegal or unlawful.

Permits shall also be abandoned upon written request from the property owner of record, or if circumstances require, the Missouri licensed design professional.

Exception: Permits for demolition of buildings or structures or repair of buildings or structures condemned in accordance with either Section 119 or Section 120 and other work specifically identified by the building official, when in the best interests of the public, shall become invalid after 30 days unless otherwise approved. The building official shall be permitted to grant one or more extensions of time for additional periods not exceeding 30 days each after receiving a written request from the owner explaining the reasons for failing to commence or for suspending work.

105.6 Suspension or Revocation. The building official is authorized to suspend or revoke a permit issued under the provisions of this code whenever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this code.

105.6.1 Revocation of Permits. The building official shall be permitted to revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or construction documents on which the permit or approval was based. The building official shall be permitted to revoke or suspend a permit upon discovery of substantial noncompliance with this code or any applicable City ordinance. Permits shall be revoked for non-payment of fees.

105.6.2 Revocation of Permits for Repeat Offenders. The building official shall revoke any permit or certificate associated with a building, structure or premises when an owner(s) is convicted by a court of competent jurisdiction twice within a twelve-month period of being in violation of the same code provision on the same building, structure or premises.

105.7 Placement of Permit. A true copy of the building permit shall be kept on the site of operations, open to inspection during the entire time of prosecution of the work and until the completion of the same.

105.8 Responsibility. It shall be the duty of every person who performs work for the installation or repair

of building, structure, electrical, gas, mechanical, or plumbing systems, for which this code is applicable, to comply with this code.

105.9 Notice of Start. At least 24 hours' notice of start of work under a building permit shall be given to the building official.

105.10 Compliance With Permit. All work shall conform to the approved application and the approved construction documents for which the permit has been issued and any approved amendments to the approved application or the approved construction documents. Any addition to or alteration of approved construction documents shall be approved in advance by the building official, as evidenced by the issuance of a new or amended permit.

SECTION 106 FLOOR AND ROOF DESIGN LOADS

106.1 Live Loads Posted. Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed 50 pounds per square foot, such design live loads shall be conspicuously posted by the owner in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

106.2 Issuance of Certificate of Occupancy. A certificate of occupancy required by Section 111 shall not be issued until the floor load signs required by Section 106.1 have been installed.

106.3 Restrictions on Loading. It shall be unlawful to place or cause or permit to be placed on any floor or roof of a building, structure, or portion thereof a load greater than is permitted by this code.

SECTION 107 CONSTRUCTION DOCUMENTS

107.1 Submittal Documents. The application for the permit shall be accompanied by at least five complete sets of construction drawings, one set of project specifications, one set of structural calculations, one set of the geotechnical (soils) report, and one set of site or building photographs with sufficient clarity and detailed dimensions to show the nature and character of the work to be performed. The minimum size of any sheet shall be 8½" x 11" and the maximum size of any sheet shall be 36" x 48". When quality of materials is essential for conformity to this code, specific information shall be given to establish such quality. This code shall not be cited nor the term "legal" or its equivalent be used as a substitute for specific information. Construction documents containing the words "not for construction," "preliminary," "review set," or their equivalent shall not be accepted for application. Construction documents marked with contractors' "take-off" notations shall not be accepted for application.

If the construction documents for single-family or multiple-family dwelling units are prepared by a Missouri licensed architect, that architect must seal, sign and date the construction documents as required by RSMo Ch. 327.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a licensed design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

107.1.1 Seals. All construction documents submitted with an application for a building permit shall be prepared by a Missouri licensed design professional as required by RSMo Ch. 327. All construction documents shall bear an original embossed or wet ink seal, original ink signature, and the date the documents were sealed by the Missouri licensed design professional for each discipline on the cover sheet of each set of construction documents or on the first sheet of each discipline's drawings within each set of construction documents.

In addition, all other sheets of the construction documents other than project specifications or calculations shall bear the original embossed, wet ink, electronic, or mechanically reproduced seal, signature, and date of the Missouri licensed design professional. Any addenda or modifications submitted for changes to the construction documents shall also bear the original embossed or wet ink seal, original ink signature, and date the documents were sealed.

All project specifications, calculations, reports, or other documents not considered to be construction drawings shall bear an original wet ink or embossed seal, original ink signature, and the date the documents were signed by the Missouri licensed design professional for each discipline on the title or index sheet.

A Missouri licensed professional engineer cannot render architectural services or seal, sign and date construction documents for any residential project. This could be interpreted as the unlawful practice of architecture by a Missouri licensed professional engineer. A Missouri licensed professional engineer may prepare

seal, sign and date architectural work which is incidental (insignificant, minor, etc.) to the engineering work (and vice versa). This determination shall be made on a case by case basis depending upon the full scope of the project.

Exceptions:

1. Construction documents for one- or two-family dwellings not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

2. Construction documents for non-structural alterations to multiple-family dwellings with not more than four dwelling units not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

3. Construction documents for owner-occupied one- or two-family dwellings prepared by the owner.

107.2 Construction Documents. Construction documents shall be in accordance with 107.2.1 through 107.2.10.

107.2.1 Information on Construction Documents. Construction documents shall be drawn and dimensioned upon suitable material. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed and show in detail that it will conform to the provisions of this code and relevant laws, ordinances, rules, and regulations as determined by the building official.

107.2.2 Fire Protection Construction Drawings. Construction drawings for the fire protection system(s) shall be submitted to show conformance with this code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9 of the Building Code.

107.2.3 Means of Egress. The construction documents shall show in sufficient detail the location, construction, size, and character of all portions of the means of egress in compliance with the provisions of this code.

107.2.4 Exterior Wall Envelope. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this code. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves, or parapets, means of drainage, water-resistive membrane, and details around openings.

The construction drawings shall include manufacturing installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system which was tested, where applicable, as well as the test procedure used.

107.2.5 Site Plan. The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades, and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirements for a site plan when the application for permit is for alteration or repair or when otherwise warranted.

107.2.5.1 Change in Site Plan. A lot shall not be changed, increased, or diminished in area from that shown on the official site plan until a revised site plan is resubmitted showing such changes accompanied by proof that the documents have been filed in the Recorder of Deeds Office and approved under the Zoning Ordinance; except that such revised site plan will not be required if the change is caused by reason of an official street or alley opening, street widening, or other public improvement.

107.2.6 Structural Information. For other than one- and two-family dwellings or existing multiple-family dwellings with no more than four units, the construction documents shall provide the information specified in Section 1603 of the Building Code.

107.2.7 Manufacturer's Installation Instructions. Manufacturer's installation instructions, as required by this code, shall be available on the job site at the time of inspection.

107.2.8 Information of Braced Wall Design. For buildings and structures utilizing braced wall design, and where required by the building official, braced wall

lines shall be identified on the construction documents. Pertinent information, including, but not limited to, bracing methods, location and length of braced wall panels, and foundation requirements of braced wall panels at top and bottom shall be provided.

107.2.9 Information for Construction in Flood Hazard Areas. For buildings and structures located in whole or in part in flood hazard areas, construction documents shall include:

1. Delineation of flood hazard areas, floodway boundaries, and flood zones, and the design flood elevation, as appropriate;

2. The elevation of the proposed lowest floor, including basement; in areas of shallow flooding (AO zones), the height of the proposed lowest floor, including basement, above the highest adjacent grade;

3. The elevation of the bottom of the lowest horizontal structural member in coastal high hazard areas (V zone); and

4. If design flood elevations are not included on the community's Flood Insurance Rate Map (FIRM), the building official and the applicant shall obtain and reasonably utilize any design flood elevation and floodway data available from other sources.

107.2.10 Information for electric vehicle charging stations. Construction documents shall include electric vehicle charging stations with system installation requirements set forth in Section 406.2.7 of the International Building Code as amended and adopted by the City of St. Louis, and the Electrical Code.

107.3 Examination of Documents. The building official shall examine or cause to be examined the construction documents for code compliance.

107.3.1 Approval of Construction Documents. The building official shall stamp three sets of construction documents "APPROVED," and at least one set of such approved construction documents shall be retained by the building official and one set shall be kept at the building site, open to the inspection of the building official or an authorized representative at all reasonable times. If additional "APPROVED" sets are required by the applicant, a charge shall be made as listed in Table 109.3.1.

107.3.2 Previous Approvals. This code shall not require changes in the construction documents, construction or designated occupancy of a building or structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been actively prosecuted in good faith within 180 days after the effective date of this chapter and has not been abandoned. When the codes adopted by the City of Saint Louis change from one edition to another, the work shall be permitted to be completed under the codes in effect when the permit for said work was originally issued.

107.3.2.1 Code Transition. Unless requirements imposed by federal law or state statute have changed, permits applied for within six months of the effective date of this chapter shall be permitted to be reviewed and approved under the former code if there is written evidence of a preliminary plan exam review of the project under the former code. The cover sheet of the construction documents shall show under which code the project was designed.

107.3.3 Phased Approval. The building official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this code. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure will be granted.

107.3.4 Design Professional in Responsible Charge. When it is determined that documents be prepared by a Missouri licensed design professional, the building official shall be authorized to require the owner or the owner's authorized agent to engage and designate on the building permit application a Missouri licensed design professional who shall act as the Missouri licensed design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute Missouri licensed design professional in responsible charge who shall perform the duties required of the original Missouri licensed design professional in responsible charge. The building official shall be notified in writing by the owner or the owner's authorized agent if the Missouri licensed design professional in responsible charge is changed or is unable to continue to perform the duties.

The Missouri licensed design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

Where structural observation is required by Section 1710 of the Building Code, the inspection program shall name the individual or firms who are to perform

structural observation and describe the stages of construction at which structural observation is to occur. See also duties specified in Section 1704 of the Building Code.

107.3.4.1 Deferred Submittals. For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the building official within a specified period.

Deferral of any submittal items shall have the prior approval of the building official. The Missouri licensed design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

The Missouri licensed design professional in responsible charge shall review the deferred submittal items and forward them to the building official with a notation indicating that they have been reviewed and found to be in general conformance with the design of the building. The deferred submittal items shall not be installed until their design and submittal documents have been approved by the building official.

107.3.4.2 Engineering Details. The building official shall require to be filed adequate details of structural, plumbing, mechanical, and electrical work including computations, loadings, and structural analysis and other essential technical data. All construction documents shall bear an original embossed or wet ink seal, original ink signature and the date the documents were sealed by the Missouri licensed design professional responsible for the design as required by state statute. Such calculations shall be permitted to be accepted by the building official as complying with the conditions of this code without the need to verify the calculations or their engineering analysis.

107.4 Amended Construction Documents. Work shall be installed in accordance with the approved construction documents. Any changes to the approved scope of work shall be submitted for approval as an addendum to the approved construction documents.

SECTION 108 TEMPORARY STRUCTURES AND USES

108.1 General. The building official is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service, but shall not be permitted for more than 180 days. The building official is authorized to grant extensions for demonstrated cause.

108.2 Conformance. Temporary construction and uses shall conform to the structural strength, fire safety, means of egress, light, ventilation, and sanitary requirements of this code as necessary to ensure the public health, safety, and general welfare.

108.3 Temporary Power. The building official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in the Electrical Code.

108.4 Termination of Approval. The building official is hereby authorized to terminate such permit for a temporary structure or use and to order the temporary structure or use to be discontinued.

SECTION 109 FEES

109.1 General. No permit, certificate, or inspection report required by the provisions of this code shall be released or issued until the fees listed in this section have been paid to the City of Saint Louis; nor shall an amendment to a permit be released until the additional fees have been paid. In collecting said fees, the building official is authorized to accept personal checks as payment; however, non-payment by said checking account shall be considered as a violation of this code and is cause for suspension or revocation of permits, certificates, or reports issued or released for such personal check payment. If a permit is suspended or revoked for non-payment of a fee or for insufficient funds, an additional $25.00 shall be collected to cover administrative costs.

109.1.1 Fees Other Than Herein Prescribed. The payment of fees listed in this section shall not relieve the applicant or holder of any permit or any certificate of occupancy from the payment of other fees which shall be prescribed by law or ordinance for water taps, sewer connections, plumbing permits, mechanical permits, electrical permits, sprinkler permits, fire alarm permits, or fees for inspections or other privileges or requirements, both within and without the jurisdiction of the Division of Building and Inspection.

109.2 Schedule of Permit Fees. Fees for permits for construction shall be as established as follows:

109.2.1 Application Fee. An application fee is an administrative charge made for processing permit ap-

plications, preparing a Certificate of Floodplain Status, or conducting a Building Line Survey and shall be as listed in Table 109.3.1.

109.2.2 New Construction and Additions. The building permit fee for new construction and additions will be based on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for new construction and additions. For the purpose of determining a fee, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe, and fire alarm systems; and signs.

109.2.3 Miscellaneous Structures and Site Work. The fee for a permit for, including, but not limited to, retaining walls, fences and site-work (including parking lots) shall be based on the estimated total cost of the construction at the rate listed in Table 109.3.1.

109.2.4 Alterations and Repairs. The fee for a permit for alterations or repairs to a building or structure shall be based on the estimated total cost of said alterations or repairs and shall be charged at the rate listed in Table 109.3.1.

109.2.5 Tanks, Devices, Etc. The fee for a permit for the installation of a tank, device, equipment, or other structure or facility shall be as listed in Table 109.3.1.

109.2.6 Tents, Amusement Booths. The fee for a permit for the construction, installation, or erection of a tent or amusement booth shall be as listed in Table 109.3.1. This shall include all those for private parties, picnics, carnivals, circuses, or traveling exhibitions.

109.2.7 Moving of Buildings. The fee for a permit to move a building or structure from one lot to another, or to a new location on the same lot, shall be as listed in Table 109.3.1. In the event that a building or structure is to be moved from a point within the City of Saint Louis to a point outside the City, the fee for the moving permit shall be based on the estimated total cost of restoration of the original site to a safe and satisfactory condition plus that portion of the moving cost which covers the journey to the City limits. In the event that a building or structure is to be moved from the outside of the City of Saint Louis to a point inside the City limits, the fee for the moving permit shall be based on the estimated total cost of the portion of the journey from the City limits to the site of re-erection.

109.2.7.1 New Foundations. Before any building or structure is moved to a new foundation, a separate building permit shall be obtained for the construction of said new foundation; the fee for the permit for said foundation shall be as listed in Table 109.3.1. In addition, all additional electrical, mechanical, and plumbing permits shall be obtained.

109.2.8 Explosives. The fee for a permit for the use of explosives for blasting in connection with demolition, excavation, construction, or other building operations shall be as listed in Table 109.3.1. When a blasting operation consists of a series of blasts at intervals of distance, such as blasting a trench for the installation of utilities, and the extent of the blasting operations exceeds 250 feet in length, the fee for a permit shall be charged for the first 250 feet of the operation with an additional fee for each additional 250 feet or any portion thereof. The fee for a permit for the use of explosives shall cover the issuance of the permit and shall also cover pre-blasting survey inspection and post-blasting survey inspection of all property within 250 feet of the blasting operation. In addition, a separate permit shall be required under the Fire Code for the transportation, storage, or use of explosives.

109.2.9 Addendum to Permit. Fees for addendums to issued permits shall be as follows:

1. Where an addendum includes work that will increase the construction cost of the complete project, the fee listed in Table 109.3.1 shall be calculated on the additional cost incurred by the change in scope, and shall include application, special demolition fund, and lead remediation fees.

2. Where an addendum does not include work that will increase the construction cost of the complete project, or includes work or removal of work that decreases the cost of the complete project, a minimum fee as listed in Table 109.3.1 and an application fee shall apply.

109.2.10 Special Demolition Fund. There shall be an additional fee charged on all building permits based on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for the special demolition fund.

109.2.11 Lead Remediation Fund. There shall be an additional fee charged on all building permits based

on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for the special lead remediation fund.

109.2.12 Vacant Building Registration Fee. A semi-annual registration fee of $200.00 shall be charged to the owner of any parcel of residential property improved by a residential structure, or commercial property improved by a structure containing multiple dwelling units, which is vacant and has been vacant for at least six months, and which is violation of this code.

109.2.13 Fee for Duplicate Copy. Any person requesting a copy of a building permit, occupancy permit, or certificate of inspection issued under this code, or the holder of any permit for similar purpose issued by the building official under any previous code or ordinance, can obtain a duplicate or re-issued copy of said permit for a fee of one dollar per copy. This fee is listed in Table 109.3.1.

109.2.14 Fee for Occupancy Permit. Fees for the issuance of an occupancy permit shall be as listed in Table 109.3.1. There shall be no charge for the issuance of the original occupancy permit upon completion of construction in accordance with the building permit for new buildings or buildings hereafter altered with construction costs exceeding $30,000.00.

109.2.14.1 Fee for Temporary or Partial Occupancy Permit. The fee for a partial occupancy permit shall be as listed in Table 109.3.1.

109.2.14.2 Fee for Changing the Name on an Occupancy Permit. Any person requesting a re-issuance of an occupancy permit issued under this code or under any previous code or ordinance due to a change of name can obtain a re-issued copy of said permit for a fee of twenty five dollars per copy. This fee is listed in Table 109.3.1.

109.2.15 Fee for Approving Additional Sets of Construction Documents. Any person requesting additional sets of approved construction documents issued under this code or under any previous code or ordinance shall be charged a fee of one dollar per page. This fee is listed in Table 109.3.1.

109.3 Fee Tables. The building official shall cause to be collected all fees as listed in Table 109.3.1 and elsewhere in this code.

109.3.1 Fee Schedule. Table 109.3.1 contains fees for permits for new construction and additions; miscellaneous structures; alterations and repairs to existing buildings; tanks; moving of buildings; demolition of structures; blasting for demolition or construction purposes; picnics, carnivals, and circuses or traveling exhibitions; tents; amusement park devices; addendums to permit; the special demolition and lead remediation funds; special inspections; and occupancy.

109.3.2 Building Permit Valuations. The applicant for a building permit shall provide a total estimated cost of construction for the project at the time of application. For the purpose of determining fees, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe and fire alarm systems; and signs.

If, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed construction estimates for the project to meet the approval of the building official. The building official shall be permitted to require the submittal of signed and notarized construction contracts when the total estimated cost of construction is questioned. Final building permit valuation shall be set by the building official.

Final costs shall be determined by the building official, if necessary, by multiplying the total floor area of the project in square feet by an appropriate square foot cost rate, or by using the current ICC Building Valuation Data Report for New Construction, Additions, Alterations, Repairs, or Rehabilitation.

Table 109.3.1

BUILDING PERMIT FEES FOR STRUCTURES; BLASTING AND INSPECTIONS FEES

Item	Fee	Minimum Fee	Section	Remarks and Requirements
APPLICATION FEE; or Building Line Survey	$25.00		109.2.1	An administrative charge made for processing applications.

Item	Fee	Minimum Fee	Section	Remarks and Requirements
Certificate of Floodplain Status	$10.00		109.2.1	
PERMIT FOR NEW CONSTRUCTION AND ADDITIONS	$6.00/$1,000.00 of estimated cost or fraction thereof	$15.00	109.2.2	
MISCELLANEOUS STRUCTURES PERMIT - Structures such as towers, retaining walls, floating structures, parking lots, fences, awnings, signs, etc.	$6.00/$$1,000.00 of estimated cost or fraction thereof	$15.00	109.2.3	For all structures, devices, appurtenances, and equipment requiring permits & not otherwise provided for by this code.
PERMIT FOR ALTERATIONS & REPAIRS TO AN EXISTING BUILDING	$6.00/$1,000.00 of estimated cost or fraction thereof	$15.00	109.2.4	Permits for flammable and combustible liquids are required under the Fire Code.
TANK PERMIT For any purpose except flammable and combustible liquids	$6.00/$1,000.00 of estimated cost or fraction thereof	$15.00	109.2.5	
TENT PERMIT	$35.00		109.2.6	Section 3103 of the Fire Code.
MOVING OF BUILDING PERMIT Within City Limits	$1.00/$100.00 of estimated cost or fraction thereof	$15.00	109.2.7	Estimated cost of moving building to new location plus cost of restoring previous site to a safe condition.
To outside City Limits	$1.00/$100.00 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building to City limits plus cost of restoring previous site to a safe condition.
From outside City Limits to within City Limits	$1.00/$100.00 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building from City Limits to a new site.
Foundation for building	$6.00/$1,000.00 of estimated cost or fraction thereof	$15.00	109.2.7.1	
EXPLOSIVES PERMIT Blasting permit for trenching	$6.00/250 lineal feet or fraction thereof	$100.00	109.2.8	For construction, excavation, or other building operation.
Blasting for demolition	$100.00	$100.00	109.2.8	Includes pre- and post-blast survey per building/per blast.
ADDENDUM PERMIT Amendment which involves additional dollars in project cost.	$6.00/$1,000.00 of estimated increased cost or fraction thereof	$25.00	109.2.9	
Amendment which involves decrease or no increase in project cost.	$25.00	$25.00		
SPECIAL DEMOLITION FUND	$2.00/$1,000.00 of estimated cost or fraction thereof		109.2.10	Special fund approved by the voters.
LEAD REMEDIATION FUND	$2.00/$1,000.00 of estimated cost or fraction thereof		109.2.11	Special fund approved by Ordinance 64699.
VACANT BUILDING REGISTRATION FEE	$200.00 Semi-annually		121.1	
DUPLICATE COPY OF BUILDING PERMIT, OCCUPANCY PERMIT OR CERTIFICATE OF INSPECTION	$1.00 per copy		109.2.13	
APPLICANT REQUEST FOR OCCUPANCY PERMIT Residential	$80.00		109.2.14 109.2.14.1	Special inspection fees for occupancy permits. This fee is also applicable to partial occupancy permits.
	$20.00/each additional unit in same structure			When units are inspected on the same site inspection.
Commercial 3,500 sq. ft. or less	$80.00			
Commercial over 3,500 sq. ft.	$160.00			
RE-ISSUANCE OF OCCUPANCY PERMIT DUE TO NAME CHANGE	$25.00 per copy		109.2.14.2	

Item	Fee	Minimum Fee	Section	Remarks and Requirements
APPROVAL OF ADDITIONAL SETS OF CONSTRUCTION DOCUMENTS	$1.00 per page		109.2.15	
DEMOLITION PERMITS - Structure volume less than 10,000 cu. ft.	$10.00	$10.00	123.1.5	Based on volume of structure exclusive of basement or cellars.
10,000 cu. ft. and over	$15.00/10,000.00 cu. ft. or fraction thereof	$25.00		Demolition permits shall be issued for a period not to exceed thirty days.
DEMOLITION INSPECTION FEE				
Less than 10,000 cu. ft.	$15.00	$15.00	123.1.5	Per site
10,000 cu. ft. or over	$25.00	$25.00		Per site
Blasting for demolition	$50.00	$50.00	109.2.8	Per site
Applicant request	$25.00			Related to other occupancy and use permits requested by the applicant.
Emergency and specialty inspection	$25.00			Charge for inspection requested to be made beyond normal working hours - not to exceed $25.00 per requested inspection.

109.3.3 Sign Fee Schedule. Table 109.3.3 contains the basic building fees for signs governed by this code.

Table 109.3.3(a)

SIGN PERMIT FEES

Item	Fee	Minimum Fee	Section
GROUND SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
ROOF SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
WALL SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
PROJECTING SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
SPECIAL OR TEMPORARY DISPLAY SIGNS REQUIRING PERMITS		$100.00	IBC H101.3.1
Fees for a special sign shall be the same as the one above which it most closely resembles.			
LETTERING OR GRAPHICS ON AWNINGS AND CANOPIES	$50.00	$50.00	
Note a. When a question arises as to what type of sign is being constructed or placed, it shall be designated as that type of sign it most closely resembles as determined by the building official. (See also Chapter 29 of the Building Code and the Zoning Ordinance.)			

109.4 Work Started Surcharge Fees Schedule. In case any work for which a permit is required by this code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.4. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 109.4

SCHEDULE FOR SURCHARGE BUILDING PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

109.5 Demolition Work Started Surcharge Fees Schedule. In case any work for which a demolition permit is required by the code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.5. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 109.5

SCHEDULE FOR SURCHARGE DEMOLITION PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

109.6 Related Fees. The payment of fees for the construction, alteration, removal or demolition for work done in connection with or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

109.7 Fees Non-Refundable. The fee for a permit based upon an estimated cost that is higher than later claimed by the applicant shall not be a basis for refund. When construction does not occur, or only partially occurs, fees collected are not refundable.

109.8 Fees Waived for Disaster Related Permits. In the event of a tornado, earthquake, flood, or any other disaster of such magnitude to activate the City Emergency Management Agency, the Building Commissioner is authorized to waive all permit fees normally collected by the Division of Building and Inspection for repairs, reconstruction, demolition, plumbing, mechanical, or electrical work or any other similar permits required by this Division to correct the damage caused by such disaster. These permit fees shall be permitted to be waived for a period not to exceed six months or as otherwise determined by the Building Commissioner.

SECTION 110 INSPECTIONS

110.1 General. Construction or work for which a permit is required shall be subject to inspection by the building official and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the City of Saint Louis. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the City of Saint Louis shall be liable for expenses entailed in the removal or replacement of any material required to allow inspection.

110.2 Preliminary Inspection. Before issuing a permit, the building official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

110.2.1 Notice to begin work. It shall be the responsibility of the holder of a permit to notify the building official when work is ready for the various inspections required by the terms of the permit or the approved rules. Such notice shall be given within a reasonable time before the inspection is desired, but in no event shall the notice be less than the working day before. Notice given on a Friday or on a day prior to a legal holiday shall not constitute notice for inspection on a Saturday, Sunday, or holiday unless arrangements have been made under approved rules for overtime inspection on such days. Before giving such notice the holder of the permit shall first test the work and satisfy themselves that it conforms to the approved construction documents and the requirements of this code.

110.3 Required Inspections. The building official, upon notification, shall make the inspections set forth in Sections 110.3.1 through 110.3.10. No work shall be done on any part of the building or structure beyond

the point indicated in each successive inspection without first obtaining the approval of the building official or authorized representative. Approval shall be given only after an inspection has been requested and made of each successive step in the construction phase and all code requirements or corrections are completed as indicated by each of the inspections required. A final inspection and approval of all buildings shall be completed before occupancy as described in Section 111. Failure to obtain a final inspection before occupancy will constitute a violation of the building code subject to the penalties as set forth in Section 25.01.030. Reinforcing steel or structural framework of any part of a building or structure shall not be covered or concealed in any manner without first obtaining the approval of the building official. The building official, upon notification from a permit holder or agent, in accordance with the rules of procedure listed on the permit and posted in the office of the building official, shall make the following inspections and shall either approve that section or portion of the construction as completed or shall notify the permit holder or agent that they have failed to comply with the law.

110.3.1 Footing or Foundation Inspection. Footing and foundation inspections shall be made after excavation for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job. The owner is solely responsible for the correct location of the foundation on the site.

110.3.1.1 Soil Inspection. A soil inspection shall be made after excavation for the building or structure is complete and trenches for footings, column pads, spread footings, or other types of footings are ready for concrete. No concrete shall be poured prior to this inspection.

110.3.1.2 Pier Inspection. Where special foundations such as drilled and poured-in-place concrete piers, driven piles of all types, caissons, and other extraordinary types are required, the building official shall make at least one inspection or more if the size of the job warrants it.

110.3.2 Concrete Slab or Under-Floor Inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories, and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

110.3.3 Lowest Floor Elevation. In flood hazard areas, upon placement of the lowest floor, including basement, and prior to further vertical construction, the elevation certificate required in Section 1612.5 of the Building Code shall be submitted to the building official.

110.3.4 Frame Inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking, and bracing are in place and pipes, chimneys, and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes, and ducts are approved.

110.3.5 Lath, Gypsum Board, and Gypsum Panel Product Inspection. Lath, gypsum board, and gypsum panel product inspections shall be made after lathing, gypsum board, and gypsum panel products, interior and exterior, are in place, but before any plastering is applied or gypsum board or gypsum panel product joints and fasteners are taped and finished.

Exception: Gypsum board and gypsum panel products that are not part of a fire-resistance-rated assembly or a shear assembly.

110.3.5.1 Covering Work. It shall be a violation of this code to cover prior to inspection any work required to be inspected under the provisions of a permit, the approved rules, or this code, regardless of any penalties for such violation. The building official shall be permitted to require the holder of the permit to uncover any such work for inspection, and the cost of uncovering such work and of replacing the cover after the work has been satisfactorily inspected, shall be borne by the holder of the permit.

110.3.6 Fire- and Smoke-Resistant Penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers, and smoke partitions shall not be concealed from view until inspected and approved.

110.3.7 Energy Efficiency Inspections. Inspections shall be made to determine compliance with Chapter 13 of the Building Code or Chapter 11 of the Residential Code for One- and Two-family Dwellings, as applicable, and shall include, but not be limited to, inspections for: envelope insulation R and U value, fenestration U value, duct system R value, and HVAC and water heating equipment efficiency.

110.3.8 Other Inspections. In addition to the inspections specified above, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this code and other laws that are enforced by the Division of Building and Inspection.

110.3.8.1 Plant Inspection. Where required by the provisions of this code or by the approved rules, materials or assemblies shall be inspected at the point of manufacture or fabrication.

110.3.8.2 Evaluation and Follow-up Services. Prior to the approval of a closed prefabricated assembly and issuance of a building permit, the building official shall require the submittal of an evaluation report of each prefabricated assembly indicating the complete details of the assembly including a description of the assembly and its components, the basis upon which the assembly is being evaluated, test results and similar information, and other data as necessary for the building official to determine conformance with this code. Acceptable reports shall be permitted to come from the State of Missouri Public Service Commission or ICC Evaluation Services.

110.3.8.2.1 Evaluation Service. The building official shall designate the evaluation service of an approved agency as the evaluation agency, and review such agency's evaluation report for adequacy and conformance to this code.

110.3.8.2.2 Follow-up Inspection. Except where all assemblies and subassemblies, service equipment, and accessories are readily accessible for complete inspection at the site without disassembly or dismantling, the building official shall conduct the frequency of in-plant inspections as necessary to reasonably ensure conformance to the approved evaluation report or shall designate an approved independent inspection agency to conduct such inspections. The inspection agency shall furnish the building official with the follow-up inspection manual and a written report of inspections upon request, and the product shall have an identifying label permanently affixed to the product indicating that factory inspections have been performed.

110.3.8.2.3 Test and Inspection Records. All required tests and inspection records shall be accessible to the building official or quality assurance agency at all times during the fabrication of the unit or subassembly and the erection of the building; or such records as the building official designates shall be filed with the building official.

110.3.8.2.4 Inspection Reports. All inspection reports shall be in writing and shall be certified by the licensed authority or responsible officer of the service, or by the individual when expert inspection services are accepted. An identifying label or stamp permanently fixed to the product indicating that factory inspection has been made shall be accepted in lieu of the aforesaid inspection report in writing if the intent or meaning of such identifying label or stamp is properly substantiated.

110.3.9 Special Inspections. For special inspections, see Section 1704 of the Building Code.

110.3.10 Final Inspection. The final inspection shall be made after all work required by the building permit is completed.

Upon completion of the building or structure, and before issuance of the occupancy permit as required in Section 111, a final inspection shall be made. All violations of the approved construction documents and permit shall be noted and the holder of the permit shall be notified of the discrepancies. The building official shall be permitted to issue a partial occupancy permit for a specific period of time. Failure to comply with the conditions shall cause revocation of the permit.

110.3.11 Blast Survey Inspections. When a permit is issued for the use of explosives, the building official shall cause to be conducted two survey inspections of all buildings within 250 feet of the blasting, and a third inspection to be made after the blasting. These inspections shall indicate any settlement, cracks or other deterioration; additional or supplemental detailed survey work shall be permitted to be required by the building official. Such inspections or survey work, as required by the building official, must be conducted by a private individual or individuals technically competent to do such work and acceptable to the building official. Such private surveys shall be conducted at the expense of the permit applicant. The additional or supplemental survey work shall be permitted to be accepted by the building official in lieu of the pre-blast or post-blast survey if the survey(s) has included all areas within 250 feet of the blasting site and contains the details required herein.

110.4 Approved Inspection Agencies. The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.

110.5 Inspection Requests. It shall be the duty of the holder of the building permit or their duly autho-

rized agent to notify the building official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspection of such work for any inspections that are required by this code.

110.5.1 Action on Notice. Upon receipt of notice that work is ready for inspection, the building official shall inspect, or cause to be inspected, the work as soon as reasonably practicable. However, failure of the building official to make a prompt inspection shall not be deemed justification for covering work without inspection when such work is required under the terms of the permit to be inspected before being covered.

110.6 Approval Required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the building official.

110.7 Periodic Inspections. The building official shall, if deemed necessary, make or cause to be made such periodic inspections of buildings, structures, devices, appurtenances, and uses as are required by and in the intervals prescribed by Table 110.7. In order to provide a uniform workload throughout the year, the building official shall be permitted to alter the intervals between periodic inspections as required to meet staffing levels.

Table 110.7

PERIODIC INSPECTION OF STRUCTURES, DEVICES, AND USES

Item	Period between inspections
Cornices, entablatures, belt courses, trim, and similar decorative features; maintenance repair and safe condition thereof (for such items projecting from the face of buildings). See note a.	3 years
Exterior cantilevered balconies, stairways, and fire escapes. See note b.	3 years
Other annual permits, certificates, and clearances through Board of Public Service action such as day care centers, nursing homes, homes for the aged, hospitals. See note c.	1 year
Permanent amusement devices	1 year
Auto lifts	1 year
Note a. Applies to all buildings over five stories or 60 feet in height. Owners to submit report bearing the seal, signature, and date of a Missouri licensed professional engineer or architect to the building official every three years describing the condition and safety of cornices, entablatures, belt courses, etc. The building official shall waive inspection if feature does not encroach over a City of Saint Louis sidewalk, street, or alley.	
Note b. Owners shall submit a report bearing the seal, signature, and date of a Missouri licensed Professional Engineer or Architect to the building official every three years describing the condition and safety of exterior cantilevered balconies, stairways, and fire escapes.	
Note c. Applies to all other inspections of buildings or uses not otherwise provided for in this code or any City ordinance which are made annually per the Board of Public Service Permit, and which are assigned by BPS to the Building Division for permit verification, certification, re-certification, or clearances.	

110.7.1 Professional Inspection. The building official shall require owners to supply inspection reports by Missouri licensed design professionals for any building, structure, appurtenance, or device when, in the building official's opinion, it is necessary to insure proper public safety, health, and welfare.

110.8 Authority to Enter. The building official shall have the authority to enter at any reasonable hour any building, structure or premises in the City of Saint Louis for which a permit has been issued but has not received a certificate of occupancy in accordance with Section R110 to enforce the provisions of this code or any other code or ordinance of the City of Saint Louis. No person shall accompany a building official onto a premises in the performance of their duty unless otherwise invited onto said premises by the owner or the owner's representative.

For all other structures or premises, when the building official has reasonable cause to believe that a code violation exists, the building official is authorized to enter the building, structure, or premises at reasonable times to inspect subject to constitutional restrictions on

unreasonable searches and seizures. If entry is refused or not obtained, the building official is authorized to pursue recourse as provided by law.

110.9 Jurisdictional Cooperation. The assistance and cooperation of the Police, Fire, Streets, Parks, and Health Departments; City Counselor's Office; and all other City officials shall be available as required in the performance of the duties of the building official.

110.10 Parking. Division of Building and Inspection employees and other City employees in jurisdictional cooperation, when on official duty, shall be allowed to park without payment of fees at any parking meter or contrary to posted no parking zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, or wheelchair ramps or within disabled parking spaces unless vehicle displays a permanent Missouri placard or license plate for the disabled.

110.10.1 Placards. Each authorized individual shall display one placard approved by the building official in either the front or rear window of private or City vehicles to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets in accordance with Section 110.10 during normal working hours. The Building Commissioner shall not issue such placards to any person not on the Division of Building and Inspection payroll. The Building Commissioner shall have the authority to request cancellation of parking tickets issued contrary to this chapter.

SECTION 111 CERTIFICATE OF OCCUPANCY

111.1 Use and Occupancy. No building, structure, or premises shall be used or occupied and no change in the existing occupancy classification of a building, structure, premises, or portion thereof shall be made until the building official has issued an occupancy permit as provided herein. Issuance of an occupancy permit shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction. Failure to have an occupancy permit approved and issued by the building official is a violation and both the occupant and owner shall be subject to a penalty as set forth in Section 25.01.030. Each day that a violation continues shall constitute a separate offense.

111.1.1 Posting Notice. It shall be the duty of the building official to post a notice on any building, structure or portion thereof when it is found that an occupancy permit is required before any occupancy shall be permitted to occur. This notice shall remain in plain sight and removal of same shall constitute a separate offense and shall be subject to a penalty as set forth in Section 25.01.030.

111.2 Partial Occupancy Permits. Upon the request of an owner or an owner's representative, a partial occupancy permit shall be permitted to be issued for a building, structure, or premises, provided that no conditions exist which endanger public life, safety, or welfare. Partial occupancy permits shall be permitted to be subject to conditions.

111.2.1 Accessible Type A Dwelling Units When Granting Partial Occupancy Permit. Before a partial occupancy can be approved, an accessible Type A unit must be completed in for sale multifamily residential buildings where 50% of the units are built out. This must be an accessible Type A dwelling that was designated on the approved building permit construction drawings or on an addendum. The unit must comply with ICC A117.1-2009 Chapter 10: Dwelling Units, Section 1003, Type A units.

If the accessible Type A dwelling unit on the original building permit construction drawings is not built out in the location shown, the architect of record shall submit revised construction drawings indicating the location of the new accessible Type A dwelling units within the building as an addendum to the original building permit application.

111.3 Certificate of Substantial Completion. Upon the request of the design professional of record, the building official shall be permitted to issue a Certificate of Substantial Completion for a building, structure, or premises before the entire work covered by the building permit has been completed provided there are no conditions existing which would endanger public safety, health, or welfare. Certificates of Substantial Completion shall be permitted to be subject to conditions. The owner can occupy or utilize the work or designated portion thereof for the use for which it is intended provided a partial occupancy permit has been applied for and issued by the building official.

111.4 Contents of the Occupancy Permit. When a building, structure, or premises is entitled thereto, the building official shall issue an occupancy permit within a reasonable period of time. The occupancy permit shall certify compliance with the provisions of this code and the purpose for which the building, structure, or premises will be used. The occupancy permit shall specify the use group in accordance with the provisions of Chapter 3 of the Building Code, the type of construc-

tion as defined in Chapter 6 of the Building Code, and any special stipulations and conditions of the building permit. Any building, structure, or premises for which an occupancy permit has been issued shall be permitted to be reinspected to confirm compliance with this code and the Zoning Ordinance.

111.5 By Whom Application Is Made. An application for an occupancy permit shall be made by the owner of record of the building, structure, or premises. If an occupancy permit application is made by any person other than the owner of record, a notarized letter or some other proof must be presented granting permission from the owner of record to the applicant to apply for the occupancy permit for the stated use. The full names, addresses, and telephone numbers of the owner, lessor, and applicant shall be stated. If the building is owned by a corporation, said notarized permission letter or other proof shall be signed by an officer or registered agent of that corporation. If the applicant for the occupancy permit is a corporation, an officer, registered agent, or other responsible person of that corporation shall sign the application stating their position with said corporation.

111.6 Posting of Occupancy Permit; Responsibilities. It shall be the duty or responsibility of the operator of every business to display a copy of a legally issued occupancy permit pertaining to the actual business in effect on the premises. It shall be the duty of the Saint Louis Police Department to enforce the provisions of this section. When the building official is informed of or suspects any violation of this code, it shall be the duty of the holder of an occupancy permit to allow the building official to inspect the building, structure, premises, or any portion thereof. Violation of this section shall result in revocation of said occupancy permit and shall be subject to penalties as set forth in Section 25.01.030.

111.7 Occupancy Permit Application Abandonment. Occupancy permit applications shall be abandoned 60 days after initial application if, in the opinion of the building official, the occupancy permit has not been diligently pursued.

Exception: Those buildings acquired from Land Reutilization Authority, in which case said occupancy permit applications shall be abandoned 180 days after initial application was filed.

111.8 Revocation. The building official is authorized to, in writing, suspend or revoke an occupancy permit or certificate of substantial completion issued under the provisions of this code whenever the permit is issued in error, on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

SECTION 112 SERVICE UTILITIES

112.1 Connection of Service Utilities. No person shall make connections from a utility, source of energy, fuel, or power to any building or system that is regulated by this code for which a permit is required until released by the building official.

112.2 Temporary Connection. The building official shall have the authority to authorize and approve the temporary connection of the building or system to the utility, source of energy, fuel, or power.

112.3 Authority to Disconnect Service Utilities. The building official shall have the authority to authorize disconnection of utility service to the building, structure, or system regulated by this code and the referenced codes and standards set forth in Section 102.4 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without the approval required by Section 112.1 or 112.2. The building official shall notify the serving utility and, wherever possible, the owner and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection, the owner or occupant of the building, structure, or service system shall be notified in writing as soon as practical thereafter.

SECTION 113 BOARD OF BUILDING APPEALS

113.1 Creation, Members, and Qualifications. There is hereby established a Board of Building Appeals consisting of seven members appointed by the Mayor, all of whom shall be residents of the City of Saint Louis; at least one of whom shall be a person engaged in the real estate business, one a Missouri licensed professional engineer, one a Missouri licensed architect, one a building contractor or subcontractor, one a person affiliated with the building and construction trades council, and two shall be citizens-at-large. There shall be four alternates who shall be permitted to be called when it is expected there will not be a quorum present. The alternates shall have all powers, protection, and stipends as the regular Board members in accordance with Civil

Service provisions. The alternates shall be appointed by the Mayor for four year terms. One alternate shall be a Missouri licensed professional engineer or Missouri licensed architect; the other alternates shall be citizens-at-large. Alternates shall not make up the majority of the Board at any hearing.

113.1.1 Term of Office. New members shall possess the same qualifications as the persons in whose place they are appointed. This is an existing board and no current appointments shall be affected by this chapter. All subsequent appointments shall be for a term of four years and shall expire on an anniversary of the date of the original term, except appointments to fill vacancies which shall be for the unexpired term. Members whose appointed terms have expired shall be permitted to continue to serve until reappointed or replaced by a new appointee.

113.1.2 Procedures. The Board shall elect one of its members as Chairman who shall serve as such during the remainder of the calendar year and until a successor is elected. The Board shall from time to time adopt rules and regulations as shall be reasonably necessary to govern its procedure and to carry into effect the provisions of this code. These rules and regulations shall be available for review at the office of the Secretary to the Board during normal working hours. It shall be unlawful for any appellant or appellant's representative to contact any member of the Board on any matter that is pending or scheduled to be heard by the Board. If a Board member is contacted by an appellant on a matter pending before the Board other than during a Board hearing, that Board member must abstain from hearing or voting on the matter, as all testimony must be heard "sworn on the record."

113.1.3 Compensation. The Board of Building Appeals members shall be compensated for services rendered on a per meeting basis as established by ordinance and subject to budgeted funds availability.

113.2 Meetings; Witnesses; Minutes to Be Kept. Meetings of the Board shall be held at the call of the Chairman and at such other times as the Board by its rules shall be permitted to provide. The Chairman, or in the Chairman's absence, the Acting Chairman shall administer oaths. The Board shall act by a majority vote and a quorum shall consist of at least four members. The Board shall keep minutes of its proceedings showing the vote of each member on each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations of witnesses and other official acts. Transcripts of hearings shall be permitted to be kept in the custody of the court reporter and need not be transcribed unless requested. The party requesting the transcripts shall pay all costs of such transcripts required including a file copy for the Board, one for the Building Division, and one for the Board's legal staff.

113.3 Types of Appeals. Any person, firm, or corporation aggrieved by a decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection shall be permitted to file an appeal when the appellant alleges:

1. That there is an error in an order, requirement, decision, or interpretation of the building official, fire official, or of any other board, commission, or other officer in the enforcement of this code;

2. That the mode, method, or manner to be followed in the erection or alteration of any building or structure in any specific case before the Board is equal to or superior to the mode, method, or manner required by the provisions of this code;

3. That the material to be used in this specific case is equal to or superior to the materials required by the provisions of this code;

4. That any other board or commission exercising powers under this code or any other code or ordinance assigned to the Division of Building and Inspection wrongfully interpreted the provisions of the code or refused to grant a license, certificate, or permit under the provisions of such code.

Exception: The Board of Building Appeals has no jurisdiction or authority to hear and decide appeals on matters covered under the Americans With Disabilities Act, the Zoning Ordinance, and Cultural Resources Ordinance.

However, an application for occupancy, alteration, or repair of an existing building or structure which involves a change of occupancy or change of use group whereupon accessibility requirements apply, the building official's determination of change of occupancy or use group shall be allowed to be appealed to the Board of Building Appeals.

113.3.1 Criteria for Issuance of a Variance for Flood Hazard Areas. A variance shall only be issued upon:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration, or topography of the site render the elevation standards inappropriate.

2. A determination that failure to grant the variance would result in exceptional hardship by rendering the lot undevelopable.

3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, or extraordinary public expense or create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

4. A determination that the variance is the minimum necessary to afford relief considering the flood hazard.

5. Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

113.4 Filing Date. Unless otherwise specified in other sections of this code, appeals shall be filed within 30 calendar days after the decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection is rendered; however, no such appeal shall be taken from any order or ruling wherein responsibility lies with the Board of Adjustment as established by the Zoning Ordinance or with any other board as established by the Revised Code of the City of Saint Louis.

Exception: Condemnation appeals shall be filed within ten calendar days of the date on the Notice of Condemnation as described in Section 119.8.

113.5 Manner and Fee for Filing Appeals. Appeals shall be taken by filing with the Secretary to the Board a notice of appeal on such forms as prescribed by the Board of Building Appeals specifying the grounds thereof, and the Secretary shall immediately transmit to the Board such notice and all papers constituting the record upon which the action appealed from is taken. The notice of appeal shall be accompanied by a fee of $150.00.

113.5.1 Waiver of Appeal Fees. In the event the Secretary to the Board receives a written claim of indigence and a request for a fee waiver, the request shall be referred to the City Counselor's Office for approval or denial and that decision shall be final. A copy of that decision shall be kept on file.

113.5.2 Multiple Appeals. In the event that more than one building, structure, or premises owned by the same person, firm, or corporation has been cited for exactly the same violation and the owner has filed an appeal with the Board disputing the same citation, the appellant shall be permitted to file one appeal covering all said buildings, structures, or premises and be charged one appeal fee. The decision rendered by the Board shall apply to all buildings, structures, or premises involved in the appeal.

113.5.3 Board Hearings; Notification. After an appeal has been filed, the Secretary to the Board shall place the appeal on a Board hearing agenda and the appellant shall be notified in writing by certified mail prescribing the time, date, and location of the hearing not less than seven days prior to said hearing. Such hearing shall be held within a reasonable time after the filing of the notice of appeal, depending on the scheduling of other appeals.

113.6 Appeals to Stay Proceedings; Exceptions. Appeals shall stay all proceedings in furtherance of the action appealed from unless the building official or fire official certifies to the Board of Building Appeals after the notice of appeal has been filed that, by reason of the facts stated in the certificate, a stay would cause imminent peril to life or property. Proceedings shall not otherwise be stayed except by restraining order.

113.7 Jurisdiction of the Board. The Board of Building Appeals is hereby empowered to hear and decide appeals in all matters described in Section 113.3.

113.7.1 Board Decisions; Notification. The Board shall enter its order and decision after hearing, affirming, modifying, or reversing the order, requirement, interpretation, ruling, or decision of the building official in whole or in part. The Board shall be permitted to require conditions or restrictions as necessary to assure that the activity complies with the intent of this code or as the Board deems appropriate. If the appellant fails to appear at the prescribed time and location of the hearing and it has been determined that notice of the hearing was received, the appeal shall be dismissed and the original order, requirement, interpretation, ruling, or decision of the building official shall be affirmed. A final decision, when used in this section, shall mean a decision rendered by the Board of Building Appeals. The Board shall, upon rendering its final decision,

notify the appellant of its order and final decision by mail. The appellant shall be deemed to have received the final decision three days after the final decision has been deposited in the United States mail with proper postage. The Board shall forward its order and decision to the building official, fire official, or any other board, commission, or officer exercising their powers under this code in writing and place a copy of the decision in its files. There shall be no rehearing or reopening of that file by the Board except where the Board has required conditions or restrictions and it is to be determined whether the conditions or restrictions have been met. No information concerning any decision reached by the Board shall be made public except to the appellant until that decision has been signed and the appellant has first been formally notified.

113.7.2 Generic Decisions. In the event that the Building Commissioner finds that a specific decision of the Board of Building Appeals would be helpful in the continued administration of this code if it were made to be generically applicable, the Building Commissioner shall be permitted to petition the Board in writing requesting that the decision of a specific case be made generically applicable, in part or in whole, without the need for individual appeals and shall become a part of the policy of the Division of Building and Inspection. This request must be made within 180 calendar days of the rendering of the decision. The Board shall only affirm or deny such petition.

113.7.3 Conditional Decisions; Method of Rehearing. When the Board of Building Appeals enters a conditional decision modifying or reversing an order of the building official and grants additional time to correct the violation(s), the Board shall grant no more than 90 days. Additional time shall be permitted to be granted if, in the opinion of the building official, sufficient progress is being made to correct the violation(s). In the event insufficient progress is being made to correct the violation(s) in the allotted time, the case shall be referred back to the Board of Building Appeals to show cause why the conditions set by the Board have not been met and why the building official's original order or decision should not be affirmed. In the event of such referral back to the Board, notification to the appellant prescribing the date, time, and location of said hearing shall be the same as that described in Section 113.5.3.

113.8 Appeals from Decisions of the Board. Any person(s) jointly or severally aggrieved by the decision of the Board of Building Appeals shall be entitled to a judicial review of the decision rendered by the Board of Building Appeals as provided in the Administrative Procedure and Review Act of the State of Missouri, being RSMo 536.100 to 536.140.

113.9 Hearing officer. The Board of Building Appeals shall have the right to appoint a hearing officer to hear and render a decision on any appeal filed with the Board of Building Appeals.

113.9.1 Qualification. The hearing officer shall be an attorney and on an approved list of attorneys who have administrative law experience. The Director of Public Safety shall compile and maintain said list.

113.9.2 Rights and Duties. The hearing officer shall have such rights, responsibilities, and duties as the Board of Building Appeals and the appellants shall have the same rights as an appellant appearing before the Board of Building Appeals, including the right to appeal pursuant to Missouri's Administrative Procedure and Review Act.

SECTION 114 VIOLATIONS

114.1 Unlawful Acts. It shall be unlawful for any person, firm, or corporation to grade for, excavate for, erect, construct, alter, extend, repair, move, remove, demolish, or occupy any building, structure, premises, or equipment regulated by this code or cause same to be done in conflict with or in violation of the provisions of this code or any decision or order of the Board of Building Appeals.

114.2 Notice of Violation. The building official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or on the person responsible for the grading, excavating, erection, construction, alteration, extension, repair, moving, removal, demolition, or occupancy of a building, structure, or premises in violation of the provisions of this code, or in violation of a detail statement or construction documents approved hereunder, or in violation of a permit or certificate issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the building official.

114.2.1 Investigation of Records. Upon the receipt of a written request from the owner of the property, or

the real estate agent for the property, or the attorney, architect, or engineer representing the owner of the property, the Permit Section Supervisor shall ask the various Building Division sections for copies of any existing violation letters concerning the property. If the request is not on the owner's letterhead, a notarized authorization from the owner must be submitted.

The response letter written by the permit section supervisor shall list any known violations and must contain the following statement: "This letter does not certify that there are no actual existing violations of the ordinances for which the Division of Building and Inspection is responsible. To determine if there are any violations of any ordinances, an application for an occupancy permit must be filed in accordance with Section 111.5 and the subsequent inspections completed. This letter does certify there are no existing letters of violation on record other than those attached herein. There will be a $25.00 fee charged for this service. Five working days will be allowed to respond to this request."

114.3 Prosecution of Violation. If the notice of violation is not complied within the time prescribed by such notice, the building official is authorized to request the legal counsel of the City of Saint Louis to institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of the unlawful occupancy of the building, structure, or premises in violation of the provisions of this code or of the order or direction made pursuant thereto.

114.4 Violation Penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters, or repairs a building or structure in violation of the approved construction documents or directive of the building official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as prescribed by law.

114.5 Abatement of Violation. The imposition of penalties as set forth in Section 25.01.030 shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction; to restrain, correct, or abate a violation; to prevent illegal occupancy of a building, structure, or premises; or to stop an illegal act, business, or use.

SECTION 115 STOP WORK ORDER

115.1 Authority. Whenever the building official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the building official is authorized to issue a stop work order.

115.2 Issuance. The work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.

115.3 Emergencies. When an emergency exists, the fire official shall not be required to give a written notice prior to stopping the work.

115.4 Unlawful Continuance. Any person who shall continue any work in or about the building, structure, or premises after having been served with a stop work order, except such work as they are directed to perform to remove a violation or unsafe condition, shall, upon conviction thereof, be subject to the penalties as set forth in Section 25.01.030. Each day that a violation continues shall constitute a separate and distinct offense.

SECTION 116 UNSAFE BUILDINGS, STRUCTURES, AND EQUIPMENT

116.1 Conditions. Buildings, structures, or equipment that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress, facilities, or light and ventilation; which constitute a fire hazard; are otherwise dangerous to human life or the public welfare; or which involve illegal or improper occupancy or inadequate maintenance shall be deemed unsafe. Unsafe buildings or structures shall be taken down and removed or made safe as the building official deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.

116.2 Record. The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

116.3 Notice. If an unsafe condition is found, the building official shall serve on the owner, agent, or person in control of the building or structure a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition, or that requires the unsafe structure to be demolished within a stipulated

time. Such notice shall require the person thus notified to declare immediately to the building official acceptance or rejection of the terms of the order.

116.4 Method of Service. Such notice shall be deemed properly served if a copy thereof is (a) delivered to the owner personally; (b) sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested; or (c) delivered in any other manner as prescribed by local law. If the certified or registered letter is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

116.5 Restoration. Where the building, structure, or equipment determined to be unsafe by the building official is restored to a safe condition to the extent that repairs, alterations, or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of Section 105.2.2 and the Existing Building Code.

SECTION 117 PROFESSIONAL ARCHITECTURAL AND ENGINEERING SERVICES

117.1 Responsibilities. The provisions of this section shall define the construction controls required for buildings involving professional architectural or engineering services and delineate the responsibilities of such professional services during construction.

117.1.1 Design. All design for new construction, alteration, repair, expansion, addition, or modification work involving the practice of professional architecture or engineering as defined by the statutory requirements of the professional licensing laws of the State of Missouri shall be prepared by licensed design professionals certified by the Missouri Board for Architects, Professional Engineers, Professional Land Surveyors and Professional Landscape Architects. All construction documents required for a building permit application for such work shall be prepared by or under the direct supervision of a Missouri licensed design professional and bear their seal, signature, and date in accordance with the state's statutes and regulations governing the professional licensing and certification of architects, professional engineers, professional land surveyors, and professional landscape architects.

117.1.2 Review. The Missouri licensed design professional whose seal is on the approved construction documents shall be responsible for review of shop drawings and samples as required by the approved construction documents and for approval for conformance to the design concept and this code. This review process shall be permitted to be contracted by the owner to another Missouri licensed design professional should the original design professional not desire to provide such services.

117.1.3 Application of Seal, Signature, and Date. All construction documents submitted with an application for a building permit shall comply with Section 107.1.1.

117.1.4 Reproduction of Sealed Documents. Construction documents sealed by a Missouri licensed design professional shall not be reproduced for anyone, other than the owner, without the expressed written permission of Missouri licensed design professional who sealed said documents, or as ordered by a court of law.

117.2 Special Professional Services. When applications are filed for unusual designs or magnitude of construction which require construction document review or inspection services beyond the capacity of the building official's staff or where referenced standards require special architect or engineer inspections, the building official shall be permitted to require the owner to retain a properly qualified Missouri licensed design professional to perform the services necessary for code compliance in addition to that provided in Section 117.1.2. This project representative shall keep daily records and submit reports as required by the building official. Upon completion of the work, the Missouri licensed design professional shall file a final report indicating whether or not all required inspections were performed and listing pertinent deviations from the building code requirements or from the approved construction documents and the source of authority for such deviations.

117.2.1 Building Permit Requirement. The necessity for special professional services shall be determined prior to issuance of the building permit unless waived to a later date by the building official. Refusal by the applicant to provide such services as required by the building official shall result in the denial of the permit.

117.2.2 Fees and Costs. All fees and costs related to the performance of special inspection services shall be borne by the owner.

117.2.3 Visits to Site. When so directed by the building official or when required by the special inspection provisions of this code, the Missouri licensed design professional shall make visits to the site at intervals appropriate to the stage of the construction to observe the progress and quality of the work; to observe construction components requiring controlled materials or construction as specified in Chapter 44, Referenced Standards; and to determine if the work is proceeding in accordance with the construction documents approved for the building permit. The Missouri licensed design professional shall periodically submit reports to the building official showing the results of such periodic visits.

SECTION 118 WORKMANSHIP

118.1 General. All work shall be conducted, installed and completed in a neat, workmanlike and acceptable manner so as to secure the results intended by this code.

SECTION 119 CONDEMNATIONS

119.1 Notification. If upon making an inspection and examination of any occupied or unoccupied building, structure, or premises, the building official finds one or more of the defects described below, the building official shall notify in writing, as provided in Section 119.2, the owner(s) of said building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office of the defects found in said building, structure, or premises and shall order them to proceed to properly demolish, repair and secure, or correct all conditions causing condemnation of said building, structure, or premises within seven days. This document is to be known as a Notice of Condemnation. If the conditions have not been corrected by the date listed in the notice, the building, structure, premises, or portion thereof or appurtenance thereto will be condemned and shall be required to be vacated, if occupied, and secured. Possible defects shall be permitted to be one or more of the following:

1. The building or structure is in a condition which endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

2. The condition of the building or structure by reason of the making of an excavation on the lot on which it is located, or any adjoining lot, endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

3. The building, structure or premises is a fire hazard for any reason, including, without limitation: obsolescence; dilapidation; deterioration; damage; lack of sufficient fire-resisting qualities; poor sanitation; or faulty electrical wiring, gas connections, or heating apparatus;

4. The building or structure lacks safe or adequate facilities for means of egress in case of fire or panic;

5. The building or structure has any one or more of the following conditions:

5.1 Improperly distributed loads upon the floors or roof;

5.2 Overloaded floors or roofs;

5.3 Insufficient strength to be reasonably safe for its actual or intended use;

6. Any portion of the building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause, that the building or structure is no longer safe or suitable for its actual or intended use;

7. Any interior or exterior portion, member, appurtenance, ornamentation, or any other component of the building or structure is likely to fall or collapse, or become detached or dislodged and thereby injure persons or damage property;

8. Any portion of the building or structure has racked, warped, buckled, or settled to such an extent that its walls or other structural portions have insufficient resistance to fire, earthquake, wind, flood, or similar perils;

9. Part or all of the building or structure is in danger of collapsing for any reason;

10. The building or structure has exterior walls or other vertical structural members which list, lean, or buckle;

11. The building, structure, or premises or any portion thereof is, for any reason, unsafe for its actual or intended use;

12. The building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause or has become so dilapidated, deteriorated, or decayed as to come within any one or more of the following categories:

12.1 The building or structure will attract and result in harm to children;

12.2 The building or structure is, or is likely to become, a harbor for vagrants or criminals;

12.3 The building or structure enables persons to resort thereto for the purpose of committing unlawful acts;

13. The building, structure, or premises has been constructed, exists, or is being maintained in violation of any provisions of this code or of any law of the City of Saint Louis;

14. The building or structure does not have the strength, fire-resisting qualities or weather-resisting qualities required by this code for newly constructed buildings of like area, height, and occupancy;

15. The building, structure, or premises is used or intended to be used for purposes that are likely to injure the health, safety, or welfare of persons who occupy or could occupy said building or structure by reason of any one or more of the following conditions:

15.1 Inadequate maintenance, dilapidation, deterioration, decay, or damage;

15.2 Faulty construction;

15.3 Inadequate light, ventilation, or sanitation facilities;

15.4 The building, structure, or premises is being used for any illegal purposes;

16. Any portion of the building or structure has been left remaining on a site after its demolition or destruction;

17. The building or structure is vacant for a period in excess of six months and because of its condition is unsafe, unsanitary, or endangers property or public health, safety, or welfare;

18. The building or structure is vacant and has been ordered secure or has been secured by order of the building official for a period in excess of twelve months and has been condemned for occupancy or has been used in the commission of a crime subsequent to being ordered secured or being secured;

19. The building or structure is only partly constructed and construction has stopped for a period in excess of six months, and because of its condition, affects the health, safety and welfare of the adjacent properties;

20. Any building or storage used for the manufacture or storage of methamphetamine, lysergic acid diethylamide, phencyclidine, gamma hydroxybutyrate, or flunitrazepam;

21. The existence of a continuing and dangerous condition of property due to the distribution of synthetic drugs, modified synthetic products, or other modified products as has been substantiated by code enforcement or law enforcement authorities.

119.1.1 Evacuation Order; Failure to Comply. Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order by the building official, except such person(s) directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person from said building, structure, or premises and prevent anyone from re-entering the building, structure, or premises until such time that the Police Department shall have been notified by the Division of Building and Inspection that the same is in a safe condition. Any person who shall violate this section shall be guilty of a misdemeanor and subject to the penalties as set forth in Section 25.01.030.

119.1.2 Dangerous Conditions. Whenever the building official shall find any building, structure or premises in such a condition that it presents a safety hazard, but not dangerous enough to warrant condemnation and demolition, and repair is relatively small in relation to the building as a whole, the building official shall post a sign on the premises which reads as follows:

WARNING ALL PERSONS ARE WARNED TO USE EXTREME CAUTION IN OR AROUND THESE PREMISES

Additionally, a letter shall be posted indicating those conditions in violation of this code and a copy of said letter shall be mailed to the owner(s) of said building, structure, or premises.

119.2 Service of Notice. The notice to the owner(s) of the building, structure, or premises found by the building official to be in violation of this code shall be directed to the owner(s) of such building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office. The notice shall be served in one of the following ways:

1. Delivering directly to owner(s).

2. Posting a copy of said notice upon the building, structure, or premises.

3. Mailing a copy of said notice by regular mail, postage prepaid, direct to owner(s)' place of business or the address currently recorded in the Assessor's Office of the City of St. Louis.

4. Publication in a newspaper of general circulation in the City of Saint Louis.

119.2.1 Posting Copy of Notice. In case such building, structure, or premises is in the occupancy of a tenant(s), in addition to the above notice it shall be the duty of the building official to post a copy of such notice upon said building, structure, or premises. It shall be a violation of this code for any person to remove any notice or copy thereof lawfully posted pursuant to this code unless otherwise ordered by the building official.

119.3 Failure to Comply; Authority to Enter into Contracts. If the owner(s) fail to comply with the order of the building official by the date indicated in the Notice of Condemnation and in such a manner that can be approved by the building official, then such owner(s) shall have violated this code and the building official shall be permitted to forthwith proceed to undertake and complete whatever work is necessary to eliminate the dangerous condition. The Building Commissioner shall have the authority to enter into contracts with no other review, signature, or approval (except for insurance) from any other City agency. Such contracts shall be permitted to include, but not be limited to, demolition, environmental investigation, remedial work, professional, or contractual services. Competitive bids shall not be required for emergency situations where there is a danger to life or property. The cost of such work performed by the building official under the provisions of Sections 119 or 120 shall be paid for by the City of Saint Louis. The building official shall certify to the Comptroller the cost of such work including the administrative costs incurred by the Division of Building and Inspection in performing said work, but in no event shall such administrative costs exceed ten percent of the contract price incurred by the Division of Building and Inspection in performing such work. The Comptroller, upon certification by the building official of the cost expended for said work, shall prepare bills for such work against the owner(s) of said building, structure, or premises. In case said bills are not paid upon presentation, they shall be referred to the City Counselor, who shall proceed to collect same by suit or lien if necessary, and the amounts when collected shall be credited to a special revolving fund for the purposes herein designated.

119.3.1 Secured Buildings. For a building or structure to be "secured" in those cases in which securing is specifically required by this code, a covering shall be placed over all doors, windows, or other openings at the first floor level; all doors and windows that are accessible from any porch, service stair, or fire escape; and all basement or cellar windows. This cover shall consist of not less than ⅜ inch plywood or other such material approved by the building official attached to the framing of all such doors and windows by wood screws, or any other material approved by the building official, of a minimum length of 1½ inches, placed not more than twelve inches on center. Such plywood or other such material approved by the building official shall be painted with a minimum of two coats of exterior grade paint of a brick red or other color which is approved by the building official. It shall be the duty and responsibility of the building official to re-enter any premises or building or portion thereof that has previously been secured and boarded either by the City of Saint Louis or any other party when, in the opinion of the building official, there is reason to believe that there happens to be new or additional violations of this code. The building official shall not be held responsible for any damage to the building, structure, or premises caused by the act of securing.

119.3.2 Reentry of Secured Buildings. The occupancy of any building or structure which has been ordered secured or has been secured by order of the building official shall be prohibited until the owner of said building or structure obtains a certificate of inspection or an occupancy permit from the building official. Work performed on any building or structure as a prerequisite to a certificate of inspection shall not be considered occupancy of said building or structure.

119.3.3 Securing Buildings 500,000 or More Square Feet Posing Significant Concern to Public Safety. For a vacant building or structure of five hundred thousand (500,000) or more square feet the condition of which is determined by the Building Commissioner to pose significant, extensive concerns to the health, safety, or welfare of the public and the owner has failed to take steps to secure it, the Building Commissioner is authorized to issue an order to secure the building or structure to prevent its entry and occupation, including but not limited to the use of steel barriers or plates and engaging the services of a security services provider, until such time as an occupancy permit is issued for the building or structure. If a security services provider is to be engaged to secure the building or structure the contracts for such services may be considered emergency measures and therefore not necessarily subject to the City's public, open bidding processes. All costs

incurred by the City to secure such building or structure shall be paid for by the owner of the building of structure.

119.4 Building Not to Be Rented or Leased. No owner or agent of the owner of any building, structure, or premises, after notice from the building official that such building, structure, or premises is unsafe or dangerous, shall rent or lease the same or any part thereof or collect any rent therefor until such building, structure, or premises has been placed in a safe and secure condition. The building official shall be permitted to require an occupancy permit to be issued prior to occupancy or re-occupancy. Any person found guilty of violating the provisions of this section shall be subject to the penalties as set forth in Section 25.01.030 regarding fine and imprisonment. Each day that a violation continues constitutes a separate and distinct offense.

Section 119.5 Cost; Method of Payment; Lien; Penalty. The building official shall have the authority to require any violator of this code to correct, remove, or abate any condition caused or permitted by them in violation of this code; and the building official shall be permitted to correct, remove, or abate the same upon their failure to comply with the requirements of this code when the public interest so requires. For all emergency condemned buildings or structures, the building official shall have the authority to receive and publicly open bids and award the contract to the lowest qualified bidder meeting the specifications without first sending said contract to the Comptroller. These contracts shall be signed by the Building Commissioner and countersigned by the Director of Public Safety and shall have the full effect of a City contract. All costs attending such action in such cases shall be paid from the appropriate fund as provided in Section 119.3 and then collected from the party offending as therein provided. A lien for such costs shall be placed against the property whereon such violation was permitted to exist. The cost shall be collected as described in 25.64.010 or, if amounts are unpaid for more than one year, may also be collected in the same manner as prescribed in Section 67.451, RSMO and 25.33.110.C.2 of the Revised Code of the City of St. Louis. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid. These bills or liens shall not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such bills or liens. Further, board-up and demolition bills shall be permitted to be waived when ownership of said property for which the bill or lien was issued is accepted by Land Reutilization Authority, Saint Louis Development Corporation, or any other City agency. Any person, firm or corporation who shall refuse or neglect to comply with the provisions of this section or who shall violate any of the provisions thereof shall be subject to the penalties as set forth in Section 25.01.030. In addition, any payments deemed to be in arrears shall be subject to interest charges at a rate set by the Comptroller.

119.5.1 Prohibited Expenditures. The building official shall not expend any monies for demolition of buildings owned by Land Reutilization Authority, Operation Impact, Saint Louis Development Corporation, Port Authority, or any other governmental agency except in emergency situations where immediate action is required to preserve public health, safety, and welfare.

119.6 Vacation of Buildings; Duties of Police; Penalty. Upon effecting condemnation of any building, structure, or premises by the building official, it shall be unlawful for any person to enter or remain in or on such building, structure, or premises until such time as the Police Department shall have been notified in writing by the building official that the same is in a safe condition. It shall be the duty of the Police to remove any person from such building, structure, or premises so condemned and to prevent any person from entering same until such time as the Police Department shall have been notified in writing by the building official that such building, structure, or premises is in compliance with this code. The provisions of this section shall not apply to licensed security guards or persons directly employed in securing the building, structure, or premises or otherwise abating the conditions causing the condemnation. Any violation of this section of the code shall be subject to the penalties as set forth in Section 25.01.030.

119.7 Removal of Decayed or Unsafe Trees. Whenever it shall come to the knowledge of the Forestry Commissioner that any tree on private property is in such a decayed or dangerous condition as to endanger the lives of persons or is likely to cause immediate damage to the property of others, the Forestry Commissioner shall cause said tree to be removed or cause such dangerous conditions to be remedied by the owner of the property whereon it is situated. The powers and duties of the Forestry Commissioner in respect to any

such tree, the notice to the owner of the property whereon it is located, the cost of its removal or remedying the dangerous condition caused thereby, the lien of such cost, the method of its collection, the penalties to be incurred by the owner, and the procedure to be followed by the Forestry Commissioner shall, as nearly as practicable, be those prescribed by this section in respect to the building official's procedures for buildings and other structures which are in a dangerous condition.

If the Forestry Commissioner cannot secure removal of the dangerous tree by Forestry Division forces or by response of the owner to the Forestry Division notice, the Forestry Commissioner shall be permitted to request the assistance of the building official in condemning the tree and securing removal after emergency or public bid by private contractors resulting in a City of Saint Louis contract to remove the tree.

The condemnation, if appealed to the Board of Building Appeals, shall require the defense testimony of Forestry Division personnel knowledgeable about trees.

The Building Division shall be permitted to make available for tree removal contracts on private property a sum not to exceed five percent of the first two hundred thousand dollars of general fund demolition monies appropriated in a fiscal year, in addition to not more than three percent of any appropriated amount over $200,000.00. The Forestry Division will prepare bid specifications and receive, process, and award such contracts billable to the Building Division demolition account subject to the dollar limits above. This procedure is for dead or dangerous trees on private property only and is not for encroachments, trimming, pruning, or other concerns.

119.8 Appeal. Any person aggrieved by the decision of the building official pursuant to Sections 119.1 through 119.7 shall be permitted to appeal such decisions to the Board of Building Appeals within ten calendar days of the date on the Notice of Condemnation. The Condemnation Committee of the Board of Building Appeals, selected by the Chairman, shall hear said appeal and render its decision affirming, modifying, or reversing the decision of the building official and, to such end, shall possess all the powers on appeal granted the building official under Sections 119.1 through 119.7. Such decision shall be subject to the procedures and review provided by the Administrative Procedure and Review Act of the State of Missouri. Filing of an appeal of any portion of Sections 119.1 through 119.7 does not stay any action provided in these sections.

119.9 Penalties. If the owner(s) fail to repair, demolish, or otherwise comply a building, structure, or premises as ordered by the Notice of Condemnation of the building official pursuant to Section 119.2 either within the seven-day period specified in Section 119.1 or within ten days after any appeal from said notice as provided in Section 119.8 is finally adjudicated adversely to said owner(s), then said owner(s) shall be guilty of a violation of this section and shall, upon conviction thereof, be subject to penalties as set forth in Section 25.01.030. Each day that any violation continues shall constitute a separate and distinct offense.

119.10 Responsibility of Ownership.

1. *Disclosure:* It shall be unlawful for any seller or grantor to convey, give, or transfer property to any buyer or grantee without first disclosing in writing to the buyer or grantee the existence of all Notices of Condemnation or any other violations of this code. The grantor shall keep and make available for inspection by the building official such disclosure signed by the grantee for a period of one year from the conveyance, gift, or transfer.

2. *Liability to prosecution and conviction:* Any person shall be permitted to be prosecuted and convicted for violation of Section 119.1.1, notwithstanding that said person has not been given the notice specified in Section 119.1, provided that the building, structure, or premises in question had one or more of the defects described in Section 119.1 during the period that said person was responsible for said building, structure, or premises as owner, corporate officer, partner, or otherwise, and provided further that said prosecution is commenced during the one-year period after said person ceased to be so responsible.

3. *Liability to suit and judgment:* Any person shall be permitted to be sued by and held liable to the City of Saint Louis, as provided in Section 119.3, for funds expended by the City of Saint Louis pursuant to said section, notwithstanding that said person has not been given the notice specified in Section 119.1, provided that the building, structure, or premises in question had one or more of the defects described in said section during the period that said person was responsible for said building, structure, or premises as owner, corpo-

rate officer, partner, or otherwise, and provided further that said suit is commenced during the one-year period after said person ceased to be so responsible.

Owner(s) are presumed by law to know the conditions of their property whether or not such notice was given. Notices sent to the address of the owner(s) shown on the City of Saint Louis Assessors Office records on the date sent shall constitute legal notice in accord with Section 119.2.

119.11 Dangerous, Hazardous, Unsanitary, or Unapproved Plumbing, Mechanical, and Electrical Installations. The building official shall have the authority to seal out of service the items listed below when, in the building official's opinion, any of these items are in an unsafe, hazardous, or unsanitary condition; if a Certificate of Inspection has not been issued by the building official; or if the installation was made without obtaining the necessary permit(s):

1. Plumbing equipment, fixtures, piping, devices, and appurtenances covered by the Building and Plumbing Codes.

2. Mechanical equipment, devices, and appurtenances covered by the Building and Mechanical Codes.

3. Electrical equipment, fixtures, devices, wiring, and appurtenances covered by the Building and Electrical Codes;

119.11.1 Notice of Sealing Out of Service. Before sealing any device out of service, the building official, except in cases of emergency, shall serve seven days' written notice upon the building owner(s) or occupant(s) by United States mail stating intention to seal the equipment out of service and the reasons therefor. Notice shall be permitted to alternately be served by posting upon or immediately adjacent to the device proposed to be sealed.

119.11.2 Unlawful to Remove or Tamper with Seal. Any device sealed out of service by the building official shall be plainly marked with a sign or tag indicating such sealing and any defacing or removal of the sign or tag, any tampering with or removal of the seal without approval of the building official, or operation of the sealed unit shall constitute a violation of this code and shall subject the violator to the penalties as set forth in Section 25.01.030.

119.12 Cancellation of Condemnation. The building official shall have authority to cancel prior condemnations either for defects or for occupancy. A condemnation shall be permitted to be rescinded by the building official only after, in the official's opinion, all necessary repairs are made to such building, structure, or premises or otherwise compliance is obtained with the building official's orders to make such building, structure, or premises safe or occupiable and defects noted have been corrected.

119.12.1 Notice of Cancellation of Condemnations. Upon cancellation of a condemnation, a notice shall be directed to the owner(s) of the building, structure, or premises stating that the condemnation has been canceled. The service of such notice shall be done in the same manner as provided for in Section 119.2.

119.13 Vacant Building Inspection. The building official shall cause to be inspected any property that potentially is subject to the registration fee as established in Section 109.2.12. The inspecting officer shall report his findings and it shall be determined whether any such property shall be subject to the registration fee by the City. Within five business days of such determination, the building official shall notify by mail the owners of property on which the registration fee has been levied at the last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the building official to the municipal court within 30 days of such notification. Absent the existence of any valid appeal or request for reconsideration the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the building official.

119.13.1 Reconsideration. Should the property owner, within 30 days of the building official making such notification, complete any improvements to the property that would be necessary to revoke the levy of the registration fee, they shall request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the building official revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the building official affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the building official.

119.13.2 Payment and Penalties. The building official shall establish procedures for the payment of the

registration fee and penalties for delinquent payment of such fees. Any registration fees which are delinquent for a period of one year shall become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations cited by the building official have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party said lien shall be considered released and the delinquent registration fee forgiven.

SECTION 120 EMERGENCY MEASURES

120.1 Procedure. When, in the opinion of the building official, a building, structure, or premises poses an immediate or imminent danger to the public health, safety, or welfare as defined in Section 119.1, the building official shall order the immediate evacuation and securing of said building, structure, or premises and shall be permitted to order all utilities to be disconnected without sending a notice. Each principle entrance shall be posted with a notice which reads as follows:

DANGER THIS PREMISES IS UNSAFE AND HAS BEEN CONDEMNED
ALL PERSONS ARE WARNED TO KEEP AWAY

Any person who refuses to leave, interferes with the evacuation of other occupants, occupies, or continues any operation after the property has been posted pursuant to this section, except such person(s) who is directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section and it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone, unless approved by the building official, from re-entering the building, structure, or premises until such time that the Police Department shall have been notified that the same is in a safe condition. The building official assumes no responsibility for persons entering upon said property, and said persons proceed at their own risk and assume all liability.

120.2 Temporary Safeguards. When, in the opinion of the building official, there is actual and immediate danger of collapse or failure of a building or structure or any part thereof which would endanger life, the building official shall be permitted to cause the necessary work to be done to render such building or structure or part thereof temporarily safe whether or not the legal procedure herein described has been instituted.

120.3 Closure. When necessary for public safety, the building official shall temporarily close sidewalks, streets, buildings, structures, and places adjacent to such unsafe building, structure, or premises and prohibit the same from being used.

120.3.1 Catchment Enclosures. If, in the opinion of the building official, it is determined that there exists an imminent structural hazard, catchment enclosures shall be erected protecting adjoining property and the public right-of-way. The cost for such catchment enclosures shall be the responsibility of the owner of record immediately adjacent to the catchment enclosure and the recovery of said costs will be as described in Section 120.5.

120.4 Emergency Repairs; Remedies. For the purpose of this section, the building official shall be permitted to employ the necessary labor and materials to perform the required work as expeditiously as possible. Further, when it is found that potable water is running inside a vacant building or structure and the owner or the owner's representative cannot be contacted, and where severe structural or other damage can thus occur to adjacent properties, the Building Commissioner or the Health Commissioner shall be permitted to order the Water Division to cease the problem flow by whatever means the Water Division finds necessary. The Water Division shall comply with any order issued pursuant to this section.

120.5 Cost of Emergency Repairs or Demolition. Costs incurred in the performance of emergency work shall be paid from the Treasury of the City of Saint Louis on certification of the building official. The legal counsel of the City of Saint Louis shall institute appropriate action against the owner(s) of the premises where the unsafe building or structure is or was located for the recovery of such costs plus a ten percent administrative fee. If such cost is not collected, a lien shall be requested to be placed upon the property by the Comptroller. The costs shall also be certified by the Collector of Revenue or other official collecting real estate taxes, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid.

120.6 Emergency Demolition or Removal. If, in the opinion of the building official, a building, structure, tree, or premises, in whole or in part, poses an immediate and imminent danger to the public health, safety, or welfare by virtue of its condition or conditions in violation of this code, the building official shall be permitted to cause the immediate removal of said building, structure, or tree without the notice set forth elsewhere in this code. Further, the building official shall have the authority to award a sole source contract for demolition of said dangerous building, structure, or tree.

120.7 Demolition of Party Walls; Responsibility. When a building or structure on one side of a party wall is demolished, the demolition contractor is required to grout solid all floor or roof joist pockets and is also responsible for installing missing portions of the party wall which were not originally built. The demolition contractor shall remove any attachments to the building or structure (plaster, mortar, steps, paneling, etc.). The adjacent wall shall have an approved roofing material applied to create a coping for the wall. The demolition contractor shall also be responsible for applying an exterior sprayed-on sand and tinted cement coating or tuckpointing; these are not the responsibility of the owner of the remaining building who relies on structural support from the party wall.

SECTION 121 REGISTRATION OF VACANT BUILDINGS

121.1 Vacant Building Registration Fee. The owner of any parcel of residential property improved by a residential structure or of commercial property improved by a structure containing multiple dwelling units which is vacant and has been vacant for at least six months and which is in violation of this code shall pay a semiannual registration fee of two hundred dollars.

121.2 Inspection. The Building Commissioner or his designee shall inspect any property that may be subject to the registration fee established in Section 121.1. The inspecting officer shall report his findings and recommendations and the Building Commissioner or his designee shall determine whether any such property shall be subject to the registration fee. Within five business days of such determination, the Building Commissioner or his designee shall notify by mail the owners of property on which the registration fee has been levied at their last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the Building Commissioner to the municipal court within thirty days of such notification. Absent the existence of any valid appeal or request for reconsideration pursuant to Section 121.3, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the Building Commissioner.

121.3 Revocation of Fees. Within thirty days of the Building Commissioner making notification pursuant to Section 121.2, the property owner may complete any improvements to the property that may be necessary to revoke the levy of the registration fee and then may request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the Building Commissioner or his designee revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the Building Commissioner or his designee affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision of the Building Commissioner to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the Building Commissioner.

121.4 Payment of Fees. The Building Commissioner is hereby authorized to establish procedures for the payment of the registration fee and penalties for delinquent payments of such fees. Any registration fees which are delinquent for a period of one year shall become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations of the applicable code cited by the Building Commissioner have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party, said lien shall be considered released and the delinquent registration fee forgiven.

121.5 Registration. The property owner shall provide their name, street address, phone number, and email address to the Assessor's Office. If the property owner does not reside in Missouri or Illinois, the property owner is required to provide the name, street address, and telephone number of a natural person eighteen years of age or older designated by the property

owner as the authorized agent for receiving notices of code violations and for receiving process in any court proceeding or administrative enforcement proceeding on behalf of such owner or owners in connection with the enforcement of this code. This person must maintain an office in either the State of Missouri or Illinois or must actually reside in either the State of Missouri or Illinois. The Building Commissioner shall be responsible for providing the information to the City Information Technology Services Agency and the information shall be available through the Geo St. Louis website.

121.6 Vacant Building Maintenance. The owner of any building that has become vacant shall, within thirty days, do the following:

1. Enclose and secure the building as defined under Section 119 of this code. All doors must be properly secured and windows on all floors of the building shall be properly secured.

2. Maintain the building in a secure and closed condition until the building is again occupied or until repair or completion of the building has been undertaken.

121.7 Collected Funds. The Comptroller of the City of St. Louis is hereby authorized and directed to establish a Special Account to be known as the Vacant Building Initiative Fund in which all funds received pursuant to this section shall be deposited and such funds shall be kept separate and apart from all other funds. One half of such funds are hereby appropriated for the costs associated with this section and other costs associated with code enforcement pertaining to vacant property. One half of such funds shall be distributed to the City's Community Development Administration for purposes of offering grants to reduce and prevent vacant and blighted property. All interest generated on deposited funds shall be accrued to the Vacant Building Initiative Fund Account.

121.8 Penalties. If an owner fails to pay the registration fee under Section 121.1 thirty days after the registration fee is assessed, a penalty shall be assessed of $250.00 per occurrence. Any owner found to be in violation of provisions of Section 121.5 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Any owner found to be in violation of provisions of Section 121.6 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Every day that a violation continues shall constitute a separate and distinct offense.

SECTION 122 CERTIFICATION OF DEMOLITION CONTRACTORS

122.1 Certificate Required. No person, partnership, or corporation shall engage in the activity of demolishing or wrecking buildings or structures as defined in Section 203 of this code within the City of Saint Louis unless such person, partnership, or corporation has first applied for and been issued a demolition certificate as a demolition contractor as defined in this section.

Exception: No demolition certificate shall be required for the City of Saint Louis when performing demolition or wrecking by force account using employees of the City of Saint Louis.

122.2 Demolition Certificate. No person, partnership, corporation, or persons or corporations doing business under a fictitious name, whether such name be legally registered or not, or corporation doing business in or conducting demolition or wrecking activities as defined in Section 203 shall conduct or be employed in conjunction with demolition as defined in Section 203 within the City of Saint Louis unless said person, a member of such partnership, or an officer of such corporation, or one of the persons or any officers of any corporation doing business under a fictitious name has received a current demolition certificate of the proper class as herein described, or said person is legally employed by a properly certified demolition contractor of the class herein described. The Demolition Contractors' Certification Board shall approve the issuance of a demolition certificate to any person, partnership, or corporation which has undertaken to comply with the provisions of the Building Code and any and all regulations thereunder, and who has proven ability, personnel, and equipment to provide the public with safe, timely, and competent service as a demolition contractor within the class of certification for which application has been made. With the determination of the person's fitness, the Demolition Contractors' Certification Board shall require an examination, either oral or written, and shall call for satisfactory experience in the field in accordance with the standards herein contained.

The Demolition Contractors' Certification Board shall be permitted to deny, revoke, or suspend any demolition certificate upon a determination after notice and hearing that the demolition contractor:

1. Has violated any provision or any obligation imposed by this code or any and all regulations thereunder, or has violated any law in the course of their dealings as a demolition contractor; or

2. Has made a material misstatement in the application for the demolition certificate; or

3. Has been guilty of fraudulent or dishonest practices, including, but not limited to: arson, embezzlement, fraud, theft, failure to complete projects before permit expiration, caused damage to abutting property, failed to comply with provisions of this certification section; or

4. Has demonstrated their incompetence or lack of ability to act as a demolition contractor.

Such demolition revocation or suspension shall be permitted to be appealed to the Board of Building Appeals.

122.2.1 Class I Certificate. A demolition certificate to be issued for one year to demolition contractors which indicates that the demolition contractor possesses the personnel, equipment, and ability to perform any demolition activities within the City of Saint Louis in accordance with applicable provisions of this code and the laws of the City of Saint Louis for demolition of a building or structure or portions thereof.

122.2.2 Class II Certificate. A demolition certificate to be issued for one year to demolition contractors which indicates that the demolition contractor possesses the personnel, equipment, and ability to perform demolition activities within the City of Saint Louis in accordance with the applicable provisions of this code and the laws of the City of Saint Louis for demolition of a building or structure or portions thereof which do not exceed three stories or 50 feet in height, or five thousand square feet in area, or 200,000 cubic feet in volume.

122.2.3 Temporary Certificate. A temporary certificate is a demolition certificate to be issued for either a Class I or Class II certificate as described above, indicating compliance with the requirements for same and demolition activities as described in Section 203 of this code are to be performed. This certificate shall be issued for a period not to exceed six months.

122.2.4 Special Certificate. A person, firm, partnership, or corporation shall be permitted to be certified as a demolition contractor in the appropriate class with a special demolition certificate if that person, firm, partnership, or corporation provides proof of appropriate insurance on a per job basis.

122.3 Demolition Contractors' Certification Board. There is hereby established a City of Saint Louis Demolition Contractors' Certification Board which shall be composed of the Building Commissioner of the City of Saint Louis or the Building Commissioner's authorized representative and four additional members appointed by the Mayor as follows: either the President of the Board of Public Service or the Director of the Department of Streets or their authorized representative, a certified general contractor, a person engaged in the real estate business, and a member of the public at large. Appointments of City employees as members of this Board shall be during such time as the Building Commissioner and either the President of the Board of Public Service or the Director of the Department of Streets hold office. All members shall be appointed to a two-year term. The term of the member-at-large shall expire on the year opposite the other members. Three members shall constitute a quorum for meetings of the Demolition Contractors' Certification Board and a simple majority shall rule in decisions rendered by this Board. The Building Commissioner shall appoint a Building Division member to serve as Secretary to the Board. The Demolition Contractors' Certification Board shall be compensated as prescribed by Civil Service provisions for such boards and committees.

122.3.1 Term of Office. New members shall possess the same qualifications as the persons in whose place they are appointed. This is an existing board and all current appointments shall not be affected by this chapter. All subsequent appointments shall be for a term of two years and shall expire on an anniversary of the date of the original term, except appointments to fill vacancies which shall be for the unexpired term. Members whose appointment terms have expired shall be permitted to continue to serve until reappointed or replaced by a new appointee.

122.3.2 Powers and Duties of the Board. The Demolition Contractors' Certification Board is to conduct itself in such a manner so as to insure as much as possible that demolition within the City of Saint Louis is performed safely in accordance with the laws of the City of Saint Louis governing demolition and demolition contracting as hereinafter set forth:

1. Administration - The Demolition Contractors' Certification Board shall receive applications, adminis-

ter tests, conduct interviews and hearings, and approve, deny, suspend, or revoke demolition certificates as herein described. The Demolition Contractors' Certification Board shall be permitted to also issue temporary certificates as described in Section 122.2.3.

2. Tests - The Demolition Contractors' Certification Board shall prescribe the form and content of tests as described herein and the form or content of demolition certificates as herein described.

3. Hearings - The Demolition Contractors' Certification Board shall hold hearings and call witnesses pursuant to certificate issuance or rules and regulations pending and shall be permitted to call special hearings related to complaints by citizens concerning demolition procedures or rules and regulations.

A. The Demolition Contractors' Certification Board (hereinafter referred to as the Demolition Board) shall meet as often as is necessary to conduct its business. The Demolition Board will set and hold hearings for annual re-certification as required.

B. The Demolition Board shall meet up to twelve times each year for the purpose of testing or re-testing applicants for certification.

C. For any special session requested and called for by the elected Chairman of the Demolition Board for any purpose set forth in the rules adopted and published by the Demolition Board.

D. For the purposes of suspending or revoking any demolition certificates previously issued when the building official finds that any holder of a demolition certificate has violated any of the provisions of this

code or any rule or regulation adopted by the Demolition Board, the building official shall serve upon the holder of the demolition certificate a written notice signed by the building official of any findings stating the violation or violations which the building official has found the certificate holder to have committed, and stating that a hearing will be held before the Demolition Board in not less than five days nor more than fifteen days. Such written notice shall further state that the purpose of such hearing shall be the revocation or suspension of the named person's demolition certificate as a demolition contractor. Such notice shall state further that the holder of the demolition certificate has the right to appear personally at such hearing and to be represented by counsel of the holder's choice. The Secretary of the Demolition Board shall mail a written notice of the time, date, and place of any such hearing to the holder of the demolition certificate at the last address furnished to the Demolition Board in the registration statement required to be filed by Section 122.3.4 paragraph 1.

4. Adoption of Rules - The Demolition Board shall be permitted to adopt rules and regulations consistent with the provisions of this chapter and the laws of the City of Saint Louis related to demolition. Such rules and regulations shall be published in the City Journal for two consecutive issues prior to becoming effective.

122.3.3 Tests. In the performance of its powers and duties for the approval, denial, revocation, or suspension of a demolition certificate, the Demolition Board shall be permitted to prescribe oral or written tests or both to establish the applicant's ability and knowledge of the laws and regulations of the City of Saint Louis. If tests are administered, equivalent testing shall be required of all demolition contractors within the same class of certificate.

122.3.4 Required Conditions Prior to Issuance of Demolition Certificate.

1. *Filing of Registration Statement.* No Class I or Class II demolition certificate or any temporary certificate or special certificate as specified herein shall be issued to any person, partnership, officer of any corporation, or any person doing business under a fictitious name, whether such name be legally registered or not, or corporation doing business in or conducting wrecking activities as herein defined unless there is first filed with the Demolition Board a certified statement by any such person, if an individual; by all persons who constitute any partnership; by all persons, individuals, and officers of any corporation doing business under a fictitious name, whether such name be legally registered or not, or corporation doing business in or conducting demolition or wrecking activities as herein defined; by the president and secretary of any corporation, setting forth the following:

A. All the names and current addresses of all such persons who are individuals or partners of any partnership; all the names and current addresses of all persons doing business under a fictitious name, whether such name be legally registered or not; the legally registered name and address of any corporation doing business together with the date when registered and the number assigned by the Secretary of the State; in or conducting demolition or wrecking activities as described in Section 203, stating the date of registration with the registration number assigned by the Secretary of the State of Missouri, and the written verification by the Secretary of State that the corporation is currently in good standing and authorized to do business in the State of Missouri.

2. *Filing Proof of Public Liability Insurance Coverage and Required Endorsements.* Prior to the issuance of any demolition certificate as a demolition contractor, there must be filed with the Demolition Board the following:

A. A public liability insurance policy in the minimum amount of $100,000.00, limits payable for injury to, including death of, any one person; and in the minimum amount of $300,000.00, limits payable for any injuries including death to any two or more persons injured in any one accident; and in the minimum amount of $50,000.00, limits payable to one or more persons for property damage at any time by reason of the carelessness or negligence of any person or persons holding any demolition certificate, or any corporation, any officer of which holds a demolition certificate, and all their agents and employees.

B. As a further condition prior to the issuance of any permit to demolish or wreck any building or structure within the City of Saint Louis, the Demolition Board shall be permitted to require that the minimum liability insurance coverage for bodily injuries, including death, to one or more persons and for property damage as set forth in paragraph 2.A above be in a greater amount as to coverage where the building, structure, or portions thereof to be demolished or razed is in excess of three stories or 50 feet in height, 5,000 square

feet in area, or 200,000 cubic feet in volume to such minimum coverage as the Demolition Board determines is necessary to protect the public and persons and property adjoining said site and traveling nearby for the duration of such demolition or wrecking operations.

C. All such liability insurance policies required by this chapter shall also contain the following endorsement: "The Insurer shall not cancel the coverage afforded by this policy unless the said insurer first delivers to the building official written notice of cancellation of such policy at least 30 days prior to such date of cancellation by either personally delivering such notice of cancellation and taking written acknowledgment of such receipt from the building official or authorized deputy or by mailing certified or registered mail and receiving a signed acknowledgment of registered mail and receiving a signed acknowledgment of such receipt from the building official or authorized deputy."

3. *Approval.* All such liability insurance policies required by this chapter must be approved by the City Counselor as to form of such policies.

4. *Demolition contracts.* The City of Saint Louis Building Division demolition contracts are awarded to independent contractors who are not direct employees or agents of the City of Saint Louis. Any damage claims that should arise as a result of demolition must be made directly against the demolition contractor or the demolition contractor's insurance company. The City of Saint Louis shall be held harmless and shall be noted as such on all demolition permits issued by the City of Saint Louis.

122.4 Demolition Certificate Fees. Certification fees and demolition contractors' certificate application fees shall be collected by the City of Saint Louis prior to issuance of a demolition certificate as listed in Table 122.4. All fees required under Section 122.4 shall be collected by the Division of Building and Inspection.

Table 122.4

DEMOLITION CERTIFICATE FEES

Item	Fee	Duration	Remarks and Requirements
Demolition Contractors' Certification Board Certificate Applications	$30.00		
Certification Fees:			
Class I	$200.00	1 year	
Class II	$90.00	1 year	
Temporary Certificate Applications:	$60.00		
Certification fees:			
Class I	$120.00	6 months	Up to 6 months
Class II	$30.00	6 months	Up to 6 months
Special Certificate Applications:	$60.00		
Certification fees:			
Class I	$120.00		Per job basis
Class II	$30.00		Per job basis

122.5 Permits. The building official shall not issue permits to perform demolition or wrecking as herein defined to any person, partnership, or corporation or to persons doing business under a fictitious name unless said permit applicant holds a current and proper class of demolition certificate.

122.5.1 Suspension of Certificate. Any person, including any officer of any corporation, holding any demolition certificate found performing demolition or wrecking as herein defined without proper permits as prescribed by this code shall be additionally subject to certificate suspension or revocation by the Demolition Board.

122.6 Standards of Qualification and Testing. For the purpose of demolition contractor certification de-

scribed herein, the Demolition Board shall qualify and test in accordance with the following Standards of Acceptance:

1. *Qualifications.*

A. *Class I Certificates.* Class I demolition contractor applicants, in addition to the requirements herein, must show documented proof of any one of the following: That said applicant has been:

I. Safely and legally doing business as a Class II demolition contractor for at least five years and shows access to the proper equipment and personnel to perform Class I demolition activities; or

II. Safely and legally doing business in demolition contracting for at least three years involving buildings of substantial size being in excess of heights, areas, and volumes described for a Class II demolition certificate as described in Section B, and shows access to the proper equipment and personnel to perform Class I demolition activities; or

III. In receipt of a Class I temporary certificate and has safely and legally performed Class I demolition activities within the City of Saint Louis under said certificate.

B. *Class II Certificates.* Class II demolition contractor applicants, in addition to the requirements herein, must show documented proof of any one of the following: That said applicant has been:

I. Safely and legally doing business in demolition contracting for at least three years and shows access to the equipment and personnel to properly perform Class II demolition activities; or

II. Legally employed by a qualified Class I or Class II demolition contractor as herein described for at least three years and shows access to the equipment and personnel to properly perform Class II demolition activities; or

III. In receipt of a Class II temporary certificate and has safely and legally performed Class II demolition activities within the City of Saint Louis under said certificate.

C. *Temporary, Either Class.* The Demolition Board, under prior test, shall be permitted to reduce the years of experience or years doing business as a demolition contractor for temporary class certificates or accept demolition certificates or licensing from other cities or administrative review bodies for temporary class certificates when such other license or certificate is predicated upon qualifications equivalent to the temporary class certificate applied for either of the above, subject to evidence of equipment and personnel, as defined in the certificate qualifications for Class I or II, as applicable to the temporary class so applied. The Demolition Board shall be permitted to issue, at its discretion, such temporary class certificates to recently established demolition companies or corporations which have filed the proper applications and submitted documentation of adequate personnel and equipment to perform said demolition activities.

2. *Testing.* All tests as described in Section 122.3.3 shall be designed to establish the applicant's knowledge of safety and precaution as it relates to demolition activities and shall involve questions directly oriented to laws and regulations of the Building Code pertinent to demolition activities and published demolition safety rules and regulations as described herein.

3. *Violations.* Any person who shall fail to comply with any of the requirements of Section 122 shall be guilty of a violation of this code and shall upon conviction thereof be subject to the penalties as set forth in Section 25.01.030. Each day that any violation continues shall constitute a separate and distinct offense.

122.7 Appeals. Any person jointly or severally aggrieved by the decision of the Demolition Board shall be entitled to a judicial review of the decision rendered by the Demolition Contractors' Certification Board as provided in the Administrative Procedure and Review Act of the State of Missouri, being RSMo 536.100—536.140.

SECTION 123 DEMOLITION OF STRUCTURES

123.1 Wrecking, Demolition, or Razing of Buildings or Structures. No person, firm, or corporation shall wreck, demolish, or raze a building or other structure within the City of Saint Louis without first obtaining a permit for said demolition from the Division of Building and Inspection. Such permit shall be issued only to a person, firm, or corporation certified as a demolition contractor by the City of Saint Louis except that a permit shall be issued to the owner of record of land or to an agency or division of the City of Saint Louis if such building is not more than 1½ stories or 15 feet in height and not more than 10,000 cubic feet in volume or 1,000 square feet in area without a basement. Demolition permit applications, when applied for by anyone other than the owner of record, shall be accompanied by a notarized letter of authorization or other documentation from the owner of record granting permission to apply.

123.1.1 Bond. Every person, firm, or corporation performing the wrecking of any building or structure

shall provide a performance bond and a payment bond subject to the approval of the Comptroller in the sum of an amount equal to the amount of the wrecking contract or cost of the wrecking, conditioned upon the requirement that the sidewalks, streets, or alleys adjacent to the wrecking shall be kept free of all materials and debris caused by the wrecking operations; that adjacent safeguards and warnings be provided for the public who use the sidewalks, streets, or alleys adjacent the wrecking; that the sidewalks, streets, alleys, municipal utilities, signs, and property be repaired of any damage caused by the wrecking operations or vehicles; that the demolition contractor shall clean, backfill, and grade the wrecking site as required by the building official; and further conditioned upon the requirement that the demolition contractor comply with the written directions and regulations of the Director of Streets and the building official. No bond shall be for less than $5,000.00.

The bond herein required shall be written by a person, firm, or corporation authorized to do bonding business in the State of Missouri and shall be subject to the approval of the City Counselor and Comptroller. The bond shall be subject to cancellation only after ten days written notice to the Comptroller.

Any person, firm or corporation who shall fail to comply with this section shall be guilty of a violation of this code and shall, upon conviction thereof, be subject to the penalties as set forth in Section 25.01.030.

123.1.2 Signs. A sign made of wood, plywood, masonite, or similar material shall be displayed at a prominent location at the front of the lot on which the demolition work is being done or on the front of the building being demolished. This sign must be displayed prior to commencement and until completion of the demolition work. The demolition permit for the site shall be affixed to part of the sign. The sign shall also state the name, address, and telephone number of the demolition contractor. Such name, address, and telephone number shall be permanently painted or otherwise reproduced on the sign in professionally lettered block letters in a format approved by the Building Division not less than 2½ inches high, in colors contrasting with the sign background. Such signs shall not be larger than nine square feet and shall not require a sign permit.

Any demolition contractor or employee thereof performing demolition work who does not display such sign commits an offense and shall, upon conviction, be subject to the penalties as set forth in Section 25.01.030.

123.1.3 Service Connections. Before a building or structure is demolished or removed, the owner or owner's agent shall notify all utilities having service connections within the building or structure such as water, electric, gas, sewer, and other connections. A permit to demolish or remove a building or structure shall not be issued until a release is obtained from the utilities stating that their respective service connections and appurtenant equipment such as meters and regulators have been removed or sealed and plugged in a safe manner.

123.1.4 Vehicles. No demolition permit shall be issued unless the applicant provides the building official proof that the vehicle(s) to be used to haul the demolition debris have the necessary permits pursuant to Chapter 11.02 of the Revised Code of the City of Saint Louis. Enforcement of this section shall be by the Street Department.

123.1.5 Demolition Permit Fee. The fee for a demolition permit and inspection for the demolition of any building or structure shall be based on the cubic footage as listed in Table 109.3.1.

123.1.6 Demolition Work Started Surcharge Fees Schedule. In case any work for which a demolition permit is required by this code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.5.

123.2 Lot Regulation. Whenever a building or structure has been removed, the premises shall be maintained free from all unsafe or hazardous conditions.

123.2.1 Foundation Walls. All foundation walls shall be broken down to at least twelve inches below grade and debris must not be larger than three feet in width and length. All concrete basement or crawl space slabs shall be broken into sections not exceeding eight feet in any dimension. Cracks shall be of sufficient size to permit drainage.

123.2.2 Grading and Backfilling. All grading and backfilling operations shall be conducted in such a manner as to provide clean, uncontaminated soil, rock, sand, gravel, concrete, asphaltic concrete, cinder blocks, and bricks. Demolition rubble or any other rubble brought in from another site to be used as fill shall be subject to laboratory testing for any contaminants at the discretion of the building official.

123.2.3 Lot Maintenance. Whenever a building or structure has been demolished and no building or con-

struction operation has been contemplated or projected as evidenced by the fact that no application for a building permit has been filed with the building official, the excavation remaining after such demolition shall be immediately filled, graded, and maintained in conformity with the existing grade immediately adjacent to such excavation or as directed by the building official. The top six inches of fill shall be clean top soil and shall be planted with grass seed and covered with straw.

123.2.4 Improper Fill. The building official shall be permitted to require the contractor to reopen a completed excavation to determine if proper fill procedures have been followed. The cost of reopening shall be borne by the demolition contractor.

123.2.5 Burial of Debris. On any demolition site where there is no basement or below grade crawl space, all demolition debris must be removed from the site. Excavation for the purpose of burying of debris will not be allowed.

123.2.6 Open Burning. Open burning shall be allowed for the purpose of providing heat for outside employees as a condition of a demolition permit. The location for any open burning shall not be less than 50 feet from any structure and provisions shall be made to prevent the fire from spreading to within 50 feet of any structure. Fire in approved containers shall be permitted provided that such fires are not less than 15 feet from any structure. A 55-gallon drum shall be considered an approved container. These provisions do not preclude provisions from the Air Pollution or Fire Prevention ordinances.

Open burning will be allowed on demolition sites when it is contained within 55-gallon drums, attended at all times, all wood and scrap confined to the drum, and a water hose or fire extinguisher available at all times. Fire drums shall be properly located on the site so as not to create a nuisance to adjoining property.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Change Section 201.3 to read as follows:

201.3 Terms Defined in Other Codes. Where terms are not defined in this code and are defined in the Energy Conservation Code, Fire Code, Fuel Gas Code, Mechanical Code or Plumbing Code, such terms shall have the meanings ascribed to them as in those codes.

Modify Section 202 Definitions by the addition or changing of definitions to read as follows:

Accessible. A site, building, facility, or portion thereof that complies with Chapter 11 of this code and ICC Al 17.1-09 Accessible and Useable Buildings and Facilities and that can be approached, entered, and used by a person with a physical disability.

Building official or *code official.* The Building Commissioner of the City of Saint Louis or any duly authorized representative.

Construction cost. The cost of all construction portions of a project, generally based upon the sum of the labor and materials used in the performance of the construction contract and other direct construction cost; does not include the compensation paid to the architect and consultants, the cost of the land, right-of-way, or other costs which are defined in the construction documents as being the responsibility of the owner.

Custodian of records. The custodian of records shall be that person who directly supervises the particular section within the Division of Building and Inspection from which records are being requested.

Electric vehicle ready space. A designated parking space which is provided with one 50 ampere, 208/240 volt dedicated branch circuit for EVSE servicing Electric Vehicles. The circuit shall terminate in a suitable termination point such as a receptacle or junction box and be located in the close proximity to the proposed location of the Electric Vehicle parking space.

Electric vehicle supply equipment (EVSE). The conductors, including the ungrounded, grounded, and equipment grounding conductors, and the electric vehicle connectors, attachment plugs, and all other fittings, devices, power outlets, or apparatus installed specifically for the purpose of transferring energy between the premises wiring and the electric vehicle.

EVSE installed space. A designated parking space which is provided with EVSE installed.

Licensed design professional. An individual who is licensed to practice their respective design profession as defined by RSMo Ch. 327.

Licensed design professional in responsible charge. A licensed design professional engaged by the owner to review and coordinate certain aspects of the project as determined by the building official for compatibility with the design of the building or structure, including submittal documents prepared by others, deferred submittal documents, and phased submittal documents.

Occupancy permit. The permit issued by the building official which certifies that the building or structure has been inspected and has complied with the applicable provisions of all City of Saint Louis ordinances, as enforced by the Division of Building and Inspection.

Owner. Any person, firm, or corporation having a legal or equitable interest in the property; their agent, operator; collector of rent; or any other person, firm, or corporation exercising any care or control of the property; or any person, firm, or corporation recorded in the official records of the state, county, or municipality as holding title to the property or otherwise having control of the property, including the guardian of the estate of any such person and the executive administrator of the estate of such person, if ordered to take possession of real property by a court.

Parking lot. Any parcel of land used in whole or in part for the parking of vehicles for which a charge is or is not be made. Legal off-street parking for up to four-family dwellings shall not be considered a parking lot.

Project cost. The total cost of a project including professional compensation, land cost, furnishings and equipment, financing, and other charges as well as the construction cost.

Registered design professional. Same as *Licensed design professional.*

Registered design professional in responsible charge. Same as *Licensed design professional in responsible charge.*

Technically infeasible. An alteration of a building or a facility that has little likelihood of being accomplished because the existing structural conditions require the removal or alteration of a load-bearing member that is an essential part of the structural frame or because other existing physical or site constraints prohibit modification or addition of elements, spaces, or features which are in full and strict compliance with the minimum requirements for new construction and which are necessary to provide accessibility.

Add Section 203 to read as follows:

SECTION 203 DEFINITIONS FOR DEMOLITION PURPOSES ONLY

Backfill. Clean, uncontaminated soil, rock, sand, gravel, concrete, asphaltic concrete, cinder blocks, or bricks.

Building. A structure enclosed within exterior walls, fire walls, or party walls built, erected, and framed of component parts designed for the housing, shelter, or enclosure and support of individuals, animals, or property of any kind which is in excess of ½ stories or 15 feet in height, 10,000 cubic feet in volume, or 1,000 square feet in area without a basement.

Demolition, clearing, grading, or backfilling. A portion of demolition activity in which clearing, grading, or backfilling operations are conducted at the demolition site in conjunction with the demolition of the building or structure as herein defined.

Demolition salvaging. A portion of demolition activity which is conducted at the demolition site in such a manner as to reuse the existing construction materials or fixtures from the building or structure such as brick, lumber, fixtures, steel, ornamental iron, or fencing; their removal or cleaning, palletizing, stacking, storing, or loading onto vehicles for shipment.

Demolition wrecking. The removal of all or portions of buildings or structures to include: on-site salvaging, on-site loading, and on-site backfilling, grading or clearing as herein defined; but does not include: the actual hauling of scrap, debris and miscellaneous materials away from the demolition site, or the removal of miscellaneous partitions, machinery, equipment, plaster, mortar, paint, fixtures, trim or finish, when performed in conjunction with building repairs or alteration work; nor does this definition include the complete relocation of buildings or structures from one site for reassembly at another site.

Demolition or wrecking contractor. Any person, firm, partnership, or group of persons doing business under a fictitious name, whether such name be legally registered or not, or corporation doing business in or conducting demolition or wrecking activities as herein defined.

Demolition or wrecking contractor employee. Any person employed by a demolition contractor in conjunction with demolition activities as herein defined.

Structure. An assembly of materials forming the construction for occupancy or use, including among others: buildings, stadiums, platforms, towers, water tanks, trestles, above-grade piers, wharves, open sheds, shelters, signs, etc., which exceed 15 feet in height, 1,000 square feet in area, or 10,000 cubic feet in volume; but not to include tents, temporary reviewing stands, staging, or statues, displays, or signs less than 30 feet in height.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Add Section 301.2 to read as follows:

301.2 Application of Other Laws. The provisions of this chapter shall not be deemed to nullify any provisions of the Zoning Ordinance or any other statute of the City of Saint Louis pertaining to the location or occupancy of buildings, except as specifically required by the provisions of this code.

Change Section 310.6 to read as follows:

310.6 Care Facilities Providing Home Day Care Licensed by the State of Missouri. Family Child Care Homes providing home day care for more than four but not more than ten unrelated children at any one time are exempt from this code if they meet the licensing capacities listed below, possess a valid State of Missouri license, are inspected by the Missouri Department of Health and the State of Missouri Fire Marshal's Office, and meet all provisions of the Zoning Ordinance of the City of Saint Louis.

1. If there is one adult provider, the family child care home shall be allowed to be licensed for up to six children including a maximum of three children under age two, or for up to ten children including a maximum of two children under age two. If only four children are present, all the children shall be permitted to be under the age of two.

2. If the provider has an adult assistant present, the family child care home shall be allowed to be licensed for up to ten children including a maximum of four children under age two, or for up to eight children who shall be permitted to be all under age two.

3. A family child care home shall be allowed to be licensed at maximum capacity for a period of eighteen consecutive hours of the 24-hour day. For the remaining six hours of the 24-hour day, care shall be allowed to be provided for ⅓ the licensed capacity of the home.

If the applicant furnishes a copy of their State of Missouri Family Child Care Home License for ten children or less, they shall receive a Home Occupation Permit Waiver subject to approval by the Board of Public Service as a Conditional Use or the Board of Adjustment as a Variance to the Zoning Code.

If an occupancy permit waiver is issued, the Building Division - Inspection Section will not inspect such State Licensed Family Child Care Home unless a Building Code or Zoning Ordinance complaint is received. Zoning Ordinance complaints will be investigated by the Building Division; however, Building Code complaints will be forwarded to the State of Missouri, Department of Health, Bureau of Child Care Safety and Licensure. Should seven calendar days elapse without response from the State of Missouri, Department of Health, Bureau of Child Care Safety and Licensure, the Building Division is empowered to investigate the complaint.

CHAPTER 4 IS AMENDED AS FOLLOWS:

Add Sections 403.4.8.1.1 and 403.4.8.1.2 to read as follows:

403.4.8.1.1 Fuel Supply. An on-premises fuel supply sufficient for two-hour full-demand operation of the system shall be provided.

Exception: Where the system is supplied with pipeline natural gas and is approved.

403.4.8.1.2 Capacity. The standby system shall have a capacity and rating that supplies all equipment required to be operational at the same time. The generating capacity is not required to be sized to operate all of the connected electrical equipment simultaneously.

406.2.7. Electric vehicle charging stations. Shall be required, per Tables 406.2.7, 406.2.8, 406.2.9, 406.2.10, 406.2.11. Electric vehicle charging stations shall be installed and labelled in accordance with NFPA 70. Electric vehicle charging system equipment shall be listed and labelled in accordance with UL 2202. Electric vehicle charging system equipment shall be listed and labelled in accordance with UL 2594. Accessibility to electric vehicle charging stations shall be provided in accordance with Chapter 11. Where an EV Ready or EVSE Installed parking space is required, at least one EV Ready or EV Installed parking space shall be installed adjacent to an ADA accessible parking space, when an ADA accessible parking space is also required.

Where the calculation of percent served results in a fractional parking space, it shall be rounded up to the next whole number if the fraction is .5 (½) of a parking space or greater. This requirement does not apply to buildings without a designated parking space, nor does this requirement apply to parking spaces located in the public right-of-way.

The following Use Groups shall require installation of EV Ready Spaces and Electric Vehicle Supply Equipment (EVSE) in accordance with Table 406.2.7 through Table 406.2.11:

TABLE 406.2.7 NON-RESIDENTIAL USE GROUPS WITH EV READY AND EVSE INSTALLED REQUIREMENT PER TABLE 406.2.8

Use Group	Applicability
A1	All
A2	Casinos uses only, excluding all other uses within A2 including restaurants
A3	All
A4	All

Use Group	Applicability
A5	All
B	All
E	Excluding daycare uses as defined by Section 305.2
I2	Hospital uses only as defined by Section 308.3.1.2, Condition 2
M	All
S2	Parking garages, open or enclosed only, excluding all other uses within S-2

TABLE 406.2.8 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR NON-RESIDENTIAL USE GROUPS

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
10—30 spaces	1 space	0 spaces
31—49 spaces	2 spaces	1 space
50 spaces and greater	5% of total parking spaces	2% of total parking spaces

TABLE 406.2.9 APPLICABLE RESIDENTIAL USE GROUPS WITH EV READY AND EVSE INSTALLED REQUIREMENT PER TABLE 406.2.10

Use Group	Applicability
R1	All
R2	All

TABLE 406.2.10 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR RESIDENTIAL USE GROUPS, JANUARY 1, 2022 THROUGH DECEMBER 31, 2024

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
5—20 spaces	1 space	0 spaces
21—49 spaces	2 spaces	1 space
50 spaces and greater	5% of total parking spaces	2% of total parking spaces

TABLE 406.2.11 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR RESIDENTIAL USE GROUPS, JANUARY 1, 2025 AND AFTER

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
5—20 spaces	1 spaces	0 spaces
21—49 spaces	2 spaces	1 space
50 spaces and greater	10% of total parking spaces	2% of total parking spaces

Change Section 415.9.3 to read as follows:

415.9.3 Dry Cleaning Plants. The construction and installation of dry cleaning plants shall be in accordance with the requirements of this code, the Mechanical Code, the Plumbing Code and NFPA 32. Dry cleaning solvents and systems shall be classified in accordance with the Fire Code.

Change Section 415.10.1 to read as follows:

415.10.1 Flammable and Combustible Liquids. The storage, handling, processing, and transporting of flammable and combustible liquids shall be in accordance with the Mechanical and Fire Codes.

The installation or removal of above-ground and under-ground storage tanks shall require a permit issued from the City of Saint Louis Fire Department and shall be subject to their regulations. Above-ground storage tanks are also subject to the requirements of the Zoning Ordinance and shall require a building permit for the construction of their structural support.

Add Section 429 to read as follows:

SECTION 429 PARKING LOTS AND OTHER PAVED SURFACES

429.1 Building Permit Requirement. A building permit is required for the construction or resurfacing of any parking lot.

Exceptions:

1. Restriping an existing parking lot that otherwise complies with this chapter provided that the existing stripes are to be repainted. The addition or relocation of parking spaces or aisles requires a building permit.
2. Lots or paved areas serving Use Group R-3, detached single family.
3. Paved areas less than 3,000 square feet for Use Group R-3, multiple single family or Use Group R-2.
4. Pothole and rut repair.
5. All legally-occupied parking lots can perform resurfacing, sealing, and striping as an on-going continued maintenance for the purpose of maintaining the parking lot in good condition.

429.2 Parking Lot Construction. Parking lot construction shall conform to Sections 429.2.1 thru 429.2.9.

429.2.1 Surface. Parking lots shall be paved and surfaced with concrete, bituminous, or other approved materials on an appropriately constructed base course.

429.2.2 Access Lanes. Access lanes, aisles, and parking spaces shall be provided in accordance with the Zoning Ordinance of the City of Saint Louis.

429.2.3 Curb Cuts. Parking lots shall be arranged to afford ready means of entrance and exit, and separate permits shall be secured for curb cuts from the City of Saint Louis Street Department.

429.2.4 Protection of Adjoining Property. A curb at least six inches above the parking lot surface shall be provided around the perimeter of the parking lot, exclusive of driveway areas, to prevent the washing of debris and extraneous matter onto the adjoining property or public right-of-way.

Parking lots shall be provided with concrete wheel stops at least six inches above the parking lot surface and placed to prevent the parked vehicle from extending over the adjacent property or public right-of-way. Wheel stops shall be so positioned such that both wheels of any car parked in the space shall contact the wheel stop. All such wheel stops shall be located inside the property line, adjacent to the public sidewalk(s), public right-of-way, and adjacent properties.

429.2.5 Drainage. Up to 3,000 square feet of parking and other paved areas shall be permitted to discharge via a driveway to each public or private street frontage and an additional 3,000 square feet shall be permitted to discharge into a public alley. Areas larger than this must have any excess area discharge into interceptor basins as specified in the Plumbing Code.

429.2.6 Striping. The parking spaces shall be clearly striped and marked.

429.2.6.1 Accessible spaces. Spaces required to be accessible to persons with disabilities shall be properly designated both by the appropriate logo painted in the space and a sign in front of the space in accordance with ICC/A117.1 listed in Chapter 35 and in full compliance with Section 1106.

429.2.7 Parking Lot Offices. The construction of parking lot offices in excess of 35 square feet shall be in accordance with this code.

429.2.8 Lighting. Parking lots often or more parking spaces intended for night time use shall have a minimum illumination of not less than two footcandles on the parking surface at any location within the parking lot. Such lights shall be so arranged as to direct the light away from adjoining dwellings. Such illumination shall be provided during the evening hours of operation of the premises that the lot serves.

Exception: If the parking lot has adequate light available from existing sources, the requirements for lighting shall be waived at the option of the building official.

429.2.9 Signs. Each operator of a parking lot charging by the hour or by the day shall display in a prominent location a sign clearly visible to motorists bearing:

1. The name of the operator.
2. The usual hours of operation.
3. The highest daily or hourly rate schedule, if applicable.
4. The highest night or special event rate schedule, if applicable.
5. The hours an attendant is normally on duty.

Where a single rate is charged or where a daily or hourly rate is charged, the highest rate in each category shall be posted in figures that shall not be less than four inches in height. If any nightly or special event rate exceeds the hourly or daytime rate, then this rate shall be posted and the figures for each of these rates shall be of the same size as those used to post daily and hourly rates. All other parking rates shall be posted legibly in a prominent location.

Nothing in any ordinance regulating the location of signs shall prohibit the erection of a sign which is not internally illuminated nor exceeds fifteen square feet in area or five feet in its longest dimension to comply with the above requirement for identification of a parking lot. All such signs shall be erected and maintained in accordance with law.

Add Section 430 to read as follows:

SECTION 430 FENCES

430.1 Requirements. Fences shall be subject to the following requirements:

1. No fence exceeding 48 inches in height shall be erected in front of the building line as determined by the guidelines and requirements set forth in the Zoning Ordinance, when constructed for uses in residential zones. Front yard building lines for corner lots are also determined by the provisions set forth in the Zoning Ordinance. Fencing on a corner lot shall not be located within the site distance triangle as defined in the Zoning Ordinance.

2. All other fences in residential zones shall be permitted to be erected to a height not to exceed eight feet along side or rear property lines.

3. Fences in commercial zones shall not exceed ten feet in height.

4. No barbed wire fence or fence topped with barbed wire, razor ribbon, or like material shall be erected for any use group in residential zones. No strand of barbed wire, razor ribbon, or like material on any fence shall be closer than seven feet to the ground.

5. Fences around swimming pools are subject to the requirements described in Section 3109.

6. The property owner shall be responsible for locating property lines as they pertain to location and construction of fences.

7. Two fences of different heights and materials shall be permitted to abut each other on a property line provided that each is on its own property and all height regulations are followed. There are no provisions as to which side the fence must face.

8. No electrically charged fences shall be erected in the City of Saint Louis.

9. No fence shall be erected, built or installed in a side or front yard beyond the building line where there is no sidewalk and where the side or front yard abuts a public street.

CHAPTER 5 IS AMENDED AS FOLLOWS:

Change Section 502.1 to read as follows:

502.1 Premises Identification. Approved numbers or addresses shall be provided for all new buildings in such a position as to be plainly visible and legible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of four inches high with a minimum stroke width of ½ inch.

If there is an alley, numbers shall also be placed on the alley elevation of the premises on which the house, building or structure is located. If there is a garage or carport fronting on an alley, house numbers shall also be placed on the alley elevation of the garage or carport.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Change Table 602 to read as follows:

Table 602

FIRE-RESISTANCE RATING REQUIREMENTS FOR EXTERIOR WALLS BASED ON FIRE SEPERATION DISTANCE a,d,g

Fire Resistance Distance = X (feet)	Type Of Construction	Occupancy Group He	Occupancy Group F-1,M,S-1r	Occupancy Group A,B,E,F-2,I,Ri,S-2,Uh
X	All	3	2	1
3 ≤ X	1A	3	2	1
	Others	2	1	1
10 ≤ X	1A, 1B	2	1	1c
	IIB, VB	1	0	0
	Others	1	1	1c
X ≥ 30	All	0	0	0
For SI: 1 foot = 304.8 mm.				
a. Load bearing exterior walls shall also comply with the fire-resistance requirements of Table 601.				
b. See Section 706.1.1 for party walls.				
c. Open parking garages complying with Section 406 shall not be required to have a fire-resistance rating.				
d. The fire-resistance rating of an exterior wall is determined based upon the fire separation distance of the exterior wall and the story in which the wall is located.				
e. For special requirements for Group H, see Section 415.6. f. For special requirements for Group S aircraft hangers, see Section 412.3.1.				
g. Where Table 705.8 permits nonbearing exterior walls with unlimited area of unprotected openings, the required fire-resistance rating for the exterior walls is 0 hours.				
h. For buildings containing only a Group U occupancy private garage or carport, the exterior wall shall not be required to have a fire-resistance rating where the fire separation distance is 3 feet or greater.				
i. For a Group R-3 building of Type II-B or V-B construction, the exterior wall shall not be required to have a fire-resistance rating where the separation distance is 3 feet or greater.				

Change Section 603.1.2 to read as follows:

603.1.2 Piping. The use of combustible piping materials shall be permitted in accordance with the limitations of the Mechanical Code and the Plumbing Code.

CHAPTER 7 IS AMENDED AS FOLLOWS:

Change Table 705.8 to read as follows:

Table 705.8

MAXIMUM AREA OF EXTERIOR WALL OPENINGS

	Fire Separation Distance (feet)				
Classification Of Opening	**0 to 3 (e)(h)**	**Greater than 3 to 5 (b)**	**Greater than 5 to 10 (d)(f)**	**Greater than 10 to 15 (c)(d)(f)**	**Greater than 15 (c)(f)**
Unprotected	5%	25%	35%	60%	No Limit
Protected	15%	50%	75%	No Limit	No Limit

For SI: 1 foot = 304.8 mm.

a. Values given are percentages of the area of the exterior wall. This table assumes that the openings are reasonably uniformly distributed. Where openings are not reasonably uniformly distributed, the portion of the wall utilized to calculate compliance with Table 704.8 shall be approved.

b. For occupancies in Group R-3, as applicable in Section 101.2, the maximum percentage of unprotected and protected exterior wall openings shall be 25 percent.

c. The area of openings in an open parking structure with a fire separation distance of greater than ten feet shall not be limited.

d. For occupancies in Group H-2 or H-3, unprotected openings shall not be permitted for openings with a fire separation distance of fifteen feet or less.

e. For requirements for fire walls for buildings with differing roof heights, see Section 705.6.1

f. The area of unprotected and protected openings is not limited for occupancies in Group R-3, as applicable in Section 101.2, with a fire separation distance greater than five feet.

g. Buildings whose exterior bearing wall, exterior nonbearing wall and exterior structural frame are not required to be fire-resistance rated shall be permitted to have unlimited unprotected openings.

h. Includes accessory buildings to Group R-3 as applicable in Section 101.2.

i. Not applicable to Group H-1, H-2 and H-3 occupancies.

j. The area of openings in a building containing only a Group U occupancy private garage or carport with a fire separation distance of 3 feet or greater shall not be limited.

k. For openings between S-2 parking garage and Group R-2 building, see Section 705, Exception 2.

Change Section 718.5 to read as follows:

718.5 Combustible Materials in Concealed Spaces in Type I or II Construction. Combustible materials shall not be permitted in concealed spaces of buildings of Type I or II construction.

Exceptions:

1. Combustible materials in accordance with Section 603.

2. Combustible materials exposed within plenums complying with Section 602 of the Mechanical Code.

3. Class A interior finish materials classified in accordance with Section 803.

4. Combustible piping within partitions or shaft enclosures installed in accordance with the provisions of this code.

5. Combustible piping within concealed ceiling spaces installed in accordance with the Mechanical Code and the Plumbing Code.

6. Combustible insulation and covering on pipe and tubing, installed in concealed spaces other than plenums, complying with Section 720.7.

CHAPTER 9 IS AMENDED AS FOLLOWS:

Add Section 901.2.1 to read as follows:

901.2.1 Non-required Systems. Any fire protection system or portion thereof not required by this code shall be permitted to be furnished and installed for partial or complete protection provided that such installed system shall meet all applicable requirements of this code. A building permit shall be required for fire suppression systems not required by this code. A building permit shall not be required for fire detection systems not required by this code.

Exceptions:

1. All High Hazard Use Groups.

2. When stipulated in a decision of the Board of Building Appeals.

3. When ordered by the Building Commissioner or Fire Marshal.

4. When the building owner requests approval and an acceptance test by the Fire Marshal's Office.

Change Section 903.3.5 to read as follows:

903.3.5 Water Supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referred in Section 903.3.1. The po-

table water supply shall be protected against backflow in accordance with the requirements of the Plumbing Code. For connections to public waterworks systems, the water supply test used for the design of fire protection systems shall be adjusted to account for seasonal and daily pressure fluctuations based on information from the water supply authority and as approved by the fire code official.

Add Sections 903.3.5.3 and 903.3.5.4 to read as follows:

903.3.5.3 Water Flow Tests. Water flow tests for fire sprinkler systems shall be conducted between the hours of 8:00 a.m. and 4:30 p.m. Monday through Friday.

903.3.5.4 Water Flow Safety Factor. A safety factor shall be applied to all flow tests for fire sprinkler systems. A parallel curve shall be drawn to the actual flow test curve that has been reduced by 10 percent of the static pressure. A sprinkler system design shall not exceed the 10 percent curve.

Change Section 903.3.8 to read as follows:

903.3.8 Limited Area Sprinkler Systems. Limited area sprinkler system attached to domestic service lines shall conform to the following minimum requirements. One sprinkler head per fire area when supplied from a one inch domestic service. Two sprinkler heads per fire area when supplied from a 1½ inch domestic service. Four sprinkler heads per fire area when supplied from a two-inch domestic service. A fire area shall be a confined area which may contain hazardous substances. Limited service sprinklers in any one building shall be limited to a maximum of twenty sprinklers. No sprinkler supply line shall be attached to a domestic service before the domestic water meter.

A backflow preventer is not required on limited area sprinkler systems using approved copper or plastic sprinkler piping.

Change Section 907.6.6 to read as follows:

907.6.6 Monitoring. All fire alarm and detection systems shall be monitored by listed central stations in accordance with NFPA 72. A certificate or placard shall be issued by a recognized listing organization that has listed the prime contractor for all newly installed fire alarm systems in commercial occupancies in accordance with the latest edition of NFPA 72. This regulation shall apply to all fire alarm systems that are newly installed in commercial occupancies for which permits are required. Any existing fire alarm system in a commercial occupancy wherein the fire alarm control panel and fire alarm system components are to be replaced shall be considered newly installed for the purposes of this section. Also, where there is reasonable cause due to noncompliance or faulty conditions, the building official may require an existing fire alarm system meet the same requirements as a newly installed system. Central station service in full compliance with the latest edition of NFPA 72, Chapter 26, shall be maintained at the protected property so long as the requirements for the fire alarm system exist.

Exceptions: Supervisory service is not required for:

1. Single- and multiple-station smoke alarms required by Section 907.2.11.
2. Smoke detectors in Group I-3 occupancies.
3. Automatic sprinkler systems in one- and two-family dwellings.

CHAPTER 11 IS AMENDED AS FOLLOWS:

Add Section 1103.1.1 to read as follows:

1103.1.1 Unknown Use Group. In cases where the previous Group is unknown or not documented, it shall be considered a Change of Use Group, and, as such, accessibility requirements shall be enforced.

Add Sections 1103.3 and 1103.4 to read as follows:

1103.3 Waiver Requirements. In order to request a waiver from the requirements of Chapter 11 Accessibility, a property owner or design professional shall submit a written request to the Commissioner on the Disabled outlining the specific reasons for their request. The Commissioner on the Disabled shall consult with the Building Inspector, Plan Review Section, or other Building Division staff about the property. A recommendation shall be made by the Commissioner on the Disabled to the Building Commissioner. The Commissioner on the Disabled and Building Commissioner shall agree to grant or deny the request for a waiver. The property owner or design professional is informed in writing of the decision by the Commissioner on the Disabled. This decision is not subject to appeal by the Board of Building Appeals. Permits for the renovated or altered building shall only be issued contingent upon compliance with the letter of agreement.

1103.4 Waiver Criteria. A waiver of accessibility requirements maybe granted if any or all of the following conditions exist:

1. It is technically infeasible to achieve accessibility as determined by the Commissioner on the Disabled.
2. The type of business or work being performed at a property, i.e., physically demanding or requiring a

high level of strength and physical mobility, cannot be reasonably performed by a person with a mobility impairment. This is determined by the Commissioner on the Disabled.

3. In an existing multi-floor building with two or more floors, where the functions on the second or other floors above grade are identical to all the functions on the first floor, vertical accessibility can be waived if the first floor is fully accessible. This is determined by the Commissioner on the Disabled on a case by case basis.

Add Section 1104.7 to read as follows:

1104.7 Accessible Routes Within a Site. ICC A117.1 shall have added to it Section 507 as follows:

507 Routes within a site.

507.1 Accessible Routes to Facilities Not Immediately Adjacent to the Public Right-of-Way. Each facility subject to Title II or III of the Americans with Disabilities Act (ADA) (public entities, public accommodations, and commercial facilities) that is not immediately adjacent to the public right-of-way shall provide an accessible route from the primary accessible entrance of the facility to off-street parking areas that serve the facility and to the public sidewalk that is as close as practical to any and all public transit stops in the vicinity. The accessible route shall be the primary pedestrian path.

Exception: Where site conditions, grades, or other obstructions preclude a direct approach, the accessible route shall not deviate unnecessarily from a direct route or involve a significant amount of out-of-direction travel.

507.2 Accessible routes adjacent to vehicular drives. An accessible route located immediately adjacent and parallel to a vehicular drive or parking lane shall be raised a minimum of 6 inches with a vertical curb. Curb ramps and crosswalk markings shall be provided where the accessible route crosses the vehicular drive.

An accessible route located at grade with and parallel to a vehicular drive shall be separated by means of a landscaped berm, a curb, or similar barrier suitable to protect pedestrians from moving vehicles and to act as edge protection.

507.3 Accessible Routes Through Parking Facilities. Where an accessible route passes through a parking facility, it shall be separated from vehicular traffic in accordance with Section 507.2. Perpendicular and angled parking spaces adjacent to an accessible route shall have wheel stops.

Exceptions:

1. Accessible routes crossing drive aisles.

2. Accessible routes with no intervening pathway from disabled designated parking spaces and access aisles and accessible passenger loading zones to accessible entrances.

Change Section 1107.6.2.2.1 to read as follows:

1107.6.2.2.1 Type A Units. In Group R-2 occupancies containing 12 or more dwelling units or sleeping units, at least 2 percent but not less than one of the units shall be a Type A unit. All Group R-2 units on a site shall be considered to determine the total number of units and the required number of Type A units. Type A units shall be dispersed among the various classes of units. Bedrooms in monasteries and convents shall be counted as sleeping units for the purpose of determining the number of units. Where the sleeping units are grouped into suites, only one sleeping unit in each suite shall count towards the number of required Type A units.

Exceptions:

1. The number of Type A units is permitted to be reduced in accordance with Section 1107.7.

2. Existing structures on a site shall not contribute to the total number of units on a site.

CHAPTER 12 IS AMENDED AS FOLLOWS:

Change Section 1205.3.3 to read as follows:

1205.3.3 Court Drainage. The bottom of every court shall be properly graded and drained to a public sewer or other approved disposal system complying with the Plumbing Code.

CHAPTER 14 IS AMENDED AS FOLLOWS:

Change Section 1405.1.1 to read as follows:

1405.1.1 Types I, II, III and IV Construction. On buildings of Types I, II, III and IV construction, exterior wall coverings shall be permitted to be constructed of combustible materials, complying with the following limitations:

1. Combustible wall coverings shall not exceed 10 percent of an exterior wall surface area when the fire separation distance is 3 feet or less.

2. Combustible exterior wall coverings shall be limited to 40 feet in height above grade plane.

3. Combustible exterior wall coverings constructed of fire-retardant-treated wood complying with Section 2302.2 for exterior installation shall not be limited in wall surface area where the fire separation distance is 3

feet or less and shall be permitted up to 60 feet in height above grade plane regardless of fire separation distance.,

4. Wood veneers shall comply with Section 1404.5.

Change Section 1405.1.1.1 to read as follows:

1405.1.1.1 Fire Separation 3 Feet or Less. Where installation on exterior walls having a fire separation distance of 3 feet or less, combustible exterior wall coverings shall not exhibit sustained flaming as defined in NFPA 268.

CHAPTER 15 IS AMENDED AS FOLLOWS:

Change Sections 1502.1 and 1502.2 to read as follows:

1502.1 General. Design and installation of roof drainage systems shall comply with Section 1502 of this code and the Plumbing Code.

1502.2 Secondary (Emergency Overflow) Drains or Scuppers. Where roof drains are required, secondary (emergency overflow) roof drains or scuppers shall be provided where the roof perimeter construction extends above the roof in such a manner that water will be entrapped if the primary drains allow buildup for any reason. The installation and sizing of secondary emergency overflow drains, leaders and conductors shall comply with the Plumbing Code.

CHAPTER 16 IS AMENDED AS FOLLOWS:

Add Section 1603.1.3.1 to read as follows:

1603.1.3.1 City of Saint Louis Criteria. For purposes of this code the ground snow load (Pg) shall be 20 psf.

Add Section 1603.1.4.1 to read as follows:

1603.1.4.1 City of Saint Louis Criteria. For purposes of this code the basic wind speed (3-second gust) shall be 115 mph, Exposure B.

Add Section 1607.16 to read as follows:

1607.16 Change of Occupancy. Any existing structure heretofore approved in which there is not a change of occupancy to an occupancy requiring greater floor live loads is permitted to be continued in use for the originally approved live loads provided that the structure is structurally safe and adequate for the proposed occupancy and the public safety is not endangered thereby. If the approved live load is less than required by this section, the areas designed for the reduced live load shall be posted with the approved load. Placards shall be of an approved design.

In every building, structure, or part thereof of Use Groups A, B, E, F, M, S where there is a change of use or function and in the building official's opinion the live load may exceed the existing allowable floor live load, there shall be a placard posted indicating the maximum allowed floor live load. Structural calculations establishing the maximum allowed floor live load shall be prepared by a Missouri licensed professional engineer. All structural calculations shall bear an original embossed or wet ink seal, original ink signature, and the date the structural calculations were sealed by the Missouri licensed professional engineer on the first sheet or on the cover sheet of the structural calculations.

The maximum allowed floor live load shall be marked on placards of an approved design which shall be supplied and securely affixed by the owner of the building or the owner's authorized agent in a conspicuous place in each space to which they relate. Any placards lost, removed, or defaced shall be replaced by the owner or the owner's agent.

CHAPTER 18 IS AMENDED AS FOLLOWS:

Add Section 1803.7 and 1803.7.1 to read as follows:

1803.7 Hazardous Excavations. Should there be an unfenced excavation or hole or open basement that endangers the sidewalk, alley, or street right-of-way, the Street Department is authorized to, without prior notice, fill or abate such hazard. Should such excavation, hole, or open basement not endanger the public right-of-way but in fact endanger an adjacent building footing, cause an embankment problem, constitute a public safety hazard anywhere on the site, or have accumulated over eighteen inches of standing water for more than seven days which, in the opinion of the Health Department, upon certification, constitutes a vector-control problem, the Building Commissioner shall be permitted to emergency-hire a contractor to fill or partially fill that excavation, hole, or open basement to mitigate the danger. All costs attending such action shall be paid by the owner of said property or premises whereon the violation was permitted to exist; said costs to be collected as described in Section 119.5.

1803.7.1 Adjacent to Excavations. Every excavation on a site located five feet or less from the street lot line shall be enclosed with a barrier not less than six feet high. Where located more than five feet from the street lot line, a barrier shall be erected when required by the building official. Barriers shall be of adequate strength to resist wind pressure as specified in Chapter 16.

Add Section 1804.8 to read as follows:

1804.8 Sanitary Landfills. No grading, excavation, or construction of buildings or structures shall be

permitted on or above land used or formerly used as a sanitary landfill or above decaying deposits of organic materials unless approved by the building official. The building official shall require a comprehensive report on the underlying soils prepared by a Missouri licensed professional engineer. This report shall take proper note of possible formation and release of combustible, explosive, or toxic vapors or gasses emanating from the underlying deposits and shall contain positive construction recommendations for elimination of such hazards.

Change Section 1805.4.3 to read as follows:

1805.4.3 Drainage Discharge. The floor base and foundation perimeter drain shall discharge by gravity or mechanical means into an approved drainage system that complies with the Plumbing Code.

Exception: Where a site is located in a well-drained gravel or sand/gravel mixture soils, a dedicated drainage system is not required.

Change Section 1809.5 to read as follows:

1809.5 Frost Protection. Except where otherwise protected from frost, foundation walls, piers, and other permanent supports of buildings and structures shall be protected from frost by one or more of the following methods:

1. Extend 30 inches minimum below finished grade;
2. Constructing in accordance with ASCE 32-01; or
3. Erecting on solid rock.

Exception: Freestanding accessory structures with an area of 200 square feet or less and an eave height of twelve feet or less shall not be required to be protected.

CHAPTERS 27 AND 29 ARE AMENDED AS FOLLOWS:

Delete Chapter 27 in its entirety. Refer to the Electrical Code.

Delete Chapter 29 in its entirety. Refer to the Plumbing Code.

CHAPTER 31 IS AMENDED AS FOLLOWS:

Change Section 3103.1.2 to read as follows:

3103.1.2 Permit Required. Temporary structures that cover an area in excess of 1,000 square feet, including connecting areas or spaces with a common means of egress or entrance which are used or intended to be used for the gathering together often or more persons, shall not be erected, operated, or maintained for any other purpose without obtaining a permit from the building official.

Change Section 3109 to read as follows:

SECTION 3109 SWIMMING POOLS, SPAS AND HOT TUBS

3109.1 General. Swimming pools, spas and hot tubs shall comply to the requirements of this section of this code provided that these regulations shall not be applicable to any such pool less than 24 inches deep or having a surface area less than 250 square feet, except where such pools are permanently equipped with a water-recirculating system or involve structural materials.

3109.1.1 Permits and Construction Documents. A swimming pool, spa or hot tub or appurtenances thereto shall not be constructed, installed, enlarged, or altered until construction documents have been submitted and a permit has been obtained from the building official. The approval of all authorities having jurisdiction over swimming pools shall be obtained before a permit can be issued.

3109.1.2 Construction Documents. Construction documents shall accurately show dimensions and construction of the pool and appurtenances and properly establish distances to lot lines, buildings, walks, and fences; provide details of the water supply system, drainage, and water disposal systems, and show all appurtenances pertaining to the swimming pool. Detailed construction drawings of structures, vertical elevations, and sections through the pool showing depth shall be included. All construction documents for in-ground swimming pools shall be sealed, signed, and dated by a Missouri licensed design professional.

3109.1.3 Locations. Swimming pools, spas or hot tubs shall not encroach on any front or side yard required by this code or by the governing zoning law, unless in accordance with specific rules of the City of Saint Louis. A wall of a swimming pool shall not be located less than six feet from any rear or side property line or ten feet from any street property line.

3109.1.4 Walkways. All public swimming pools shall have walkways not less than four feet in width extending entirely around the pool. Curbs or sidewalks around any swimming pool shall have a slip-resistant surface for a width of not less than one foot at the edge of the pool, and shall be so arranged as to prevent return pf surface water to the pool.

Change Section 3111.2 to read as follows:

3111.2 Solar Thermal Systems. Solar thermal systems shall be designed and installed in accordance with Section 2606.12, the Plumbing Code, the Mechanical Code and the Fire Code.

CHAPTER 32 IS AMENDED AS FOLLOWS:

Change Section 3202.1.1 to read as follows:

3202.1.1 Structural Support Below Grade. Any part of a building or structure hereafter erected below grade that is necessary for structural support of the building or structure shall not project beyond the lot lines except that the footings of street or alley walls or their supports located at least eight feet below grade shall not project more than twelve inches beyond the lot line. Footings of buildings or structures shall be permitted to project up to six inches into streets or alleys regardless of depth.

Add Section 3202.3.1.1 to read as follows:

3202.3.1.1 Small Awning Exception. A permit shall not be required for the erection, repair, or replacement of fixed awnings less than 40 square feet in projected area or retractable awnings less than 150 square feet in area unless they project over public property. No such awning, however, shall be installed so as to project over property not owned by the premises on which such awning is installed.

Change Section 3202.3.2 and add Section 3202.3.2.1 to read as follows:

3202.3.2 Windows, Architectural Features, and Mechanical Equipment. Where the vertical clearance above grade to projecting windows, architectural features, or mechanical equipment is more than ten feet, one inch of encroachment is permitted for each additional one inch of clearance above ten feet.

3202.3.2.1 Balconies. Balconies shall be located at least ten feet above the grade level.

Add Sections 3202.5 through 3202.6 to read as follows:

3202.5 Signs. Projecting signs, including irons and other fixtures, shall not extend more than five feet into the public right-of-way.

3202.5.1 Signs Projecting into Streets. Projections shall not be nearer than two feet to a curb and not less than ten feet above the curb or public sidewalk.

3202.5.2 Signs Projecting into Alleys. Projections shall not be less than sixteen feet above an alley.

3202.6 Special Encroachments. All other encroachments shall be considered special encroachments where the legal sanction is conveyed by the Board of Public Service. These encroachments shall be so constructed as to be readily removable without endangering the safety of the building. Inspections shall be as set forth in Table 110.7.

CHAPTER 33 IS AMENDED AS FOLLOWS:

Change Section 3305.1 to read as follows:

3305.1 Facilities Required. Sanitary facilities shall be provided during construction, remodeling or demolition activities in accordance with the Plumbing Code.

CHAPTER 35 IS AMENDED AS FOLLOWS:

Modify Chapter 35 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials
5001 E. Philadelphia Street
Ontario, CA 91761-2816
UPC-09-Uniform Plumbing Code
201.3, 415.9.3, 429.2.5, 603.1.2, 718.5, 903.3.5, 1205.3.3, 1502.1, 1502.2, 1805.4.3, 3111.2, 3305.1

APPENDIX G IS AMENDED AS FOLLOWS:

Change Appendix G to read as follows:

APPENDIX G

FLOOD RESISTANT CONSTRUCTION

SECTION G101 STATUTORY AUTHORIZATION, FINDINGS OF FACT, AND PURPOSES

G101.1 Statutory Authorization. The Legislature of the State of Missouri has delegated the responsibility to local governmental units to adopt floodplain management regulations designed to protect the health, safety, and general welfare. Therefore, the Board of Aldermen of the City of Saint Louis ordains as follows:

G101.2 Findings of Fact.

G101.2 1 Flood Losses Resulting from Periodic Inundation. The special flood hazard areas of the City of Saint Louis, Missouri are subject to inundation which results in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety, and general welfare.

G101.2.2 General Causes of the Flood Losses. These flood losses are caused by:

1. The cumulative effect of development in any delineated floodplain causing increases in flood heights and velocities; and

2. The occupancy of flood hazard areas by uses vulnerable to floods, hazardous to others, inadequately elevated, or otherwise unprotected from flood damages.

G101.2.3. Methods Used to Analyze Flood Hazards. The Flood Insurance Study (FIS) that is the basis of this appendix uses a standard engineering method of analyzing flood hazards which consist of a series of interrelated steps.

1. Selection of a base flood that is based upon engineering calculations which permit a consideration of such flood factors as its expected frequency of occurrence, the area inundated, and the depth of inundation. The base flood selected for this appendix is representative of large floods which are characteristic of what can be expected to occur on the particular streams subject to this appendix. It is in the general order of a flood which could be expected to have a one percent chance of occurrence in any one year as delineated on the Federal Insurance Administrator's FIS, and illustrative materials dated July 17, 1979, as amended, and any future revisions thereto.

2. Calculation of water surface profiles is based on a standard hydraulic engineering analysis of the capacity of the stream channel and overbank areas to convey the regulatory flood.

3. Computation of a floodway required to convey this flood without increasing flood heights more than one foot at any point.

4. Delineation of floodway encroachment lines within which no development is permitted that would cause any increase in flood height.

5. Delineation of flood fringe, i.e., that area outside the floodway encroachment lines but still subject to inundation by the base flood.

G101.3 Statement of Purpose. It is the purpose of this appendix to promote the public health, safety, and general welfare; to minimize those losses described in Article 1, Section B(1); to establish or maintain the community's eligibility for participation in the National Flood Insurance Program (NFIP) as defined in 44 Code of Federal Regulations (CFR) 59.22(a)(3); and to meet the requirements of 44 CFR 60.3(d) by applying the provisions of this appendix to:

1. Restrict or prohibit uses that are dangerous to health, safety, or property in times of flooding or cause undue increases in flood heights or velocities;

2. Require uses vulnerable to floods, including public facilities that serve such uses, be provided with flood protection at the time of initial construction; and

3. Protect individuals from buying lands that are unsuited for the intended development purposes due to the flood hazard.

SECTION G102 DEFINITIONS

G102.1. Scope. Unless specifically defined below, words or phrases used in this appendix shall be interpreted so as to give them the same meaning they have in common usage and to give this appendix its most reasonable application.

100-year flood. See *Base flood*.

Accessary structure. Means the same as *Appurtenant structure*.

Actuarial rates. See *Risk premium rates*.

Administrator. The Federal Insurance Administrator.

Agency. The Federal Emergency Management Agency (FEMA).

Appeal. A request for review of the Floodplain Administrator's interpretation of any provision of this appendix or a request for a variance.

Appurtenant structure. A structure that is on the same parcel of property as the principle structure to be insured and the use of which is incidental to the use of the principal structure.

Area of special flood hazard. The land in the floodplain within the City of Saint Louis subject to a one percent or greater chance of flooding in any given year.

Base flood. The flood having a one percent chance of being equaled or exceeded in any given year.

Basement. Any area of the structure having its floor subgrade (below ground level) on all sides.

Building. See *Structure*.

Chief executive officer or *Chief elected official.* The Mayor of the City of Saint Louis.

Community. The City of Saint Louis, Missouri.

Development. Any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, levees, levee systems, mining, dredging, filling, grading, paving, excavation, or drilling operations, or storage of equipment or materials.

Elevated building. For insurance purposes, a nonbasement building which has its lowest elevated floor raised above ground level by foundation walls, shear walls, posts, piers, pilings, or columns.

Eligible community or *participating community.* A community for which the Administrator has authorized the sale of flood insurance under the National Flood Insurance Program (NFIP).

Existing construction. For the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM

or before January 1, 1975, for FIRMs effective before that date. existing construction may also be referred to as existing structures.

Existing manufactured home park or subdivision. A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by the City of Saint Louis.

Expansion to an existing manufactured home park or subdivision. The preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Flood or *flooding.* A general and temporary condition of partial or complete inundation of normally dry land areas from (a) the overflow of inland or (b) the unusual and rapid accumulation or runoff of surface waters from any source.

Flood Boundary and Floodway Map (FBFM). An official map of a City on which the Administrator has delineated both special flood hazard areas and the designated regulatory floodway.

Flood elevation determination. A determination by the Administrator of the water surface elevations of the base flood, that is, the flood level that has a one percent or greater chance of occurrence in any given year.

Flood elevation study. An examination, evaluation and determination of flood hazards.

Flood fringe. The area outside the floodway encroachment lines, but still subject to inundation by the regulatory flood.

Flood Hazard Boundary Map (FHBM). An official map of this City, issued by the Administrator, where the boundaries of the flood areas having special flood hazards have been designated as (unnumbered or numbered) A zones.

Flood Insurance Rate Map (FIRM). An official map of this City on which the Administrator has delineated both the special flood hazard areas and the risk premium zones applicable to the City.

Flood Insurance Study (FIS). An examination, evaluation, and determination of flood hazards and, if appropriate, corresponding water surface elevations.

Floodplain or *flood-prone area.* Any land area susceptible to being inundated by water from any source (see "flooding").

Floodplain administrator. A Missouri Licensed design professional as appointed by the Building Commissioner.

Floodplain management. The operation of an overall program of corrective and preventive measures for reducing flood damage, including, but not limited to, emergency preparedness plans, flood control works, and floodplain management regulations.

Floodplain management regulations. Ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as floodplain and grading ordinances), and other applications of police power. The term describes such state or local regulations, in any combination thereof, that provide standards for the purpose of flood damage prevention and reduction.

Floodproofing. Any combination of structural and nonstructural additions, changes, or adjustments to structures that reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, or structures and their contents.

Floodway or *regulatory floodway.* The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

Floodway encroachment lines. The lines marking the limits of floodways on federal, state and local floodplain maps.

Freeboard. Freeboard is a factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, clogged bridge openings, and the hydrological effect of urbanization on the watershed. For purposes of this code, freeboard shall be at least one foot above the base flood elevation.

Functionally dependent use. A use that cannot perform its intended purpose unless it is located or carried out in close proximity to water. This term includes only docking facilities and facilities that are necessary for the loading and unloading of cargo or passengers, but does not include long-term storage or related manufacturing facilities.

Highest adjacent grade. The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure. Any structure that is (a) listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register; (b) certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district; (c) individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or (d) individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either (a) by an approved state program as determined by the Secretary of the Interior or (b) directly by the Secretary of the Interior in states without approved programs.

Lowest floor. The lowest floor of the lowest enclosed area, including basement. An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access, or storage, in an area other than a basement area, is not considered a building's lowest floor provided that such enclosure is not built so as to render the structure in violation of the applicable floodproofing design requirements of this code.

Manufactured home. A structure, transportable in one or more sections, that is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term "manufactured home" does not include a "recreational vehicle."

Manufactured home park or subdivision. A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Map. The Flood Hazard Boundary Map (FHBM), Flood Insurance Rate Map (FIRM), or the Flood Boundary and Floodway Map (FBFM) for the City of Saint Louis, issued by the Federal Emergency Management Agency (FEMA).

Market value or *fair market value.* An estimate of what is fair, economic, just, and equitable value under normal local market conditions.

Mean sea level. For purposes of the National Flood Insurance Program (NFIP), the National Geodetic Vertical Datum (NGVD) of 1929 or other datum to which base flood elevations shown on this City's Flood Insurance Rate Map (FIRM) are referenced.

New construction. For the purposes of determining insurance rates, structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, "new construction" means structures for which the "start of construction" commenced on or after the effective date of the floodplain management regulations adopted by the City of Saint Louis and includes any subsequent improvements to such structures.

New manufactured home park or subdivision. A manufactured home park or subdivision for which the construction of facilities for servicing the lot on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by the City.

(NFIP). The National Flood Insurance Program (NFIP).

Participating community also known as an *eligible community.* A community in which the Administrator has authorized the sale of flood insurance.

Person. Any individual or group of individuals, corporation, partnership, association, or any other entity, including federal, state, and local governments and agencies.

Principally above ground. At least 51 percent of the actual cash value of the structure, less land value, is above ground.

Recreational vehicle. A vehicle which is (a) built on a single chassis; (b) 400 square feet or less when measured at the largest horizontal projections; (c) designed to be self-propelled or permanently towable by a light-duty truck; and (d) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Remedy a violation. To bring the structure or other development into compliance with federal, state, or local floodplain management regulations; or, if this is not possible, to reduce the impacts of its noncompliance.

Risk premium rates. Those rates established by the Administrator pursuant to individual City studies and

investigations which are undertaken to provide flood insurance in accordance with Section 1307 of the National Flood Disaster Protection Act of 1973 and the accepted actuarial principles. RISK PREMIUM RATES include provisions for operating costs and allowances.

Special flood hazard area. See *Area of special flood hazard*.

Special hazard area. An area having special flood hazards and shown on an FHBM, FIRM, or FBFM as zones (unnumbered or numbered) A and AE.

Start of construction. Includes substantial-improvements, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvements were within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slabs or footings, the installation of piles, the construction of columns, any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling, the installation of streets or walkways, excavation for a basement, footings, piers, foundations, the erection of temporary forms, nor installation on the property of accessory structures such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial-improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building whether or not that alteration affects the external dimensions of the building.

State coordinating agency. That agency of the state government or other office designated by the governor of the state or by state statute at the request of the Administrator to assist in the implementation of the National Flood Insurance Program (NFIP) in that state.

Structure. For floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. STRUCTURE, for insurance purposes, means a walled and roofed building, other than a gas or liquid storage tank, that is principally above ground and affixed to a permanent site, as well as a manufactured home on a permanent foundation. For the latter purpose, the term includes a building while in the course of construction, alteration, or repair, but does not include building materials or supplies intended for use in such construction, alteration, or repair unless such materials or supplies are within an enclosed building on the premises.

Substantial damage. Damage of any origin sustained by a structure whereby the cost of restoring the structure to pre-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

Substantial improvement. Any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before "start of construction" of the improvement. This term includes structures which have incurred "substantial-damage" regardless of the actual repair work performed. The term does not, however, include either (a) any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications that have been identified by the local code enforcement official and which are the minimum necessary to ensure safe living conditions, or (b) any alteration of an historic structure provided that the alteration will not preclude the structure's continued designation as an historic structure.

Variance. A grant of relief by the City from the terms of a floodplain management regulation. Flood insurance requirements remain in place for any varied use or structure and cannot be varied by the City.

Violation. The failure of a structure or other development to be fully compliant with the City's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required by this appendix is presumed to be in violation until such time as that documentation is provided.

Water surface elevation. The height in relation to the National Geodetic Vertical Datum (NGVD) of 1929 (or other datum where specified) of floods of various magnitudes and frequencies in the floodplain.

SECTION G103 GENERAL PROVISIONS

G103.1. Lands to Which this Appendix Applies. This appendix shall apply to all lands within the jurisdiction of the City of Saint Louis identified as numbered and unnumbered A zones and AE zones on the Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) dated July 17, 1979 as amended, and any future revisions thereto. In all areas

covered by this appendix, no development shall be permitted except through the issuance of a floodplain development permit, granted by the Board of Aldermen or its duly designated representative under such safeguards and restrictions as the Board of Aldermen or the designated representative may reasonably impose for the promotion and maintenance of the health, safety, and general welfare of the inhabitants of the community and as specifically noted in Section G105.

G103.2. Floodplain Administrator. A Missouri Licensed design professional as appointed by the Building Commissioner is hereby designated as the Floodplain Administrator.

G103.3 Compliance. No development located within the special flood hazard areas of this community shall be located, extended, converted, or structurally altered without full compliance with the terms of this appendix and other applicable regulations.

G103.4 Abrogation and Greater Restrictions. It is not intended by this appendix to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this appendix imposes greater restrictions, the provisions of this appendix shall prevail. All other ordinances inconsistent with this appendix are hereby repealed to the extent of the inconsistency only.

G103.5 Interpretation. In their interpretation and application, the provisions of this appendix shall be held to be minimum requirements, shall be liberally construed in favor of the governing body, and shall not be deemed a limitation or repeal of any other powers granted by state statutes.

G103.6 Warning and Disclaimer of Liability. The degree of flood protection required by this appendix is considered reasonable for regulatory purposes and is based on engineering and scientific methods of study. Larger floods may occur on rare occasions or the flood heights may be increased by manmade or natural causes such as ice jams and bridge openings restricted by debris. This appendix does not imply that areas outside the floodway and flood fringe or land uses permitted within such areas will be free from flooding or flood damage. This appendix shall not create a liability on the part of the City of Saint Louis or any officer or employee thereof for any flood damages that may result from reliance on this appendix or any administrative decision lawfully made hereunder.

G103.7 Severability. If any section, clause, provision, or portion of this appendix is adjudged unconstitutional or invalid by a court of appropriate jurisdiction, the remainder of this appendix shall not be affected thereby.

G103.8 Certificate of Floodplain Status. A Special Inspection of records to indicate whether a property is located within the floodplain area as designated by the Official Floodplain Maps provided by FEMA (Federal Emergency Management Agency) to the City of St. Louis. This letter does not imply that the referenced property will or will not be free from flooding or damage. A property not in a Special Flood Hazard Area could be damaged by a flood greater than that predicted on the FIRM or from a local drainage problem not shown on the map. This letter does not create liability on the part of the City or any officer or employee thereof for any damage that results from reliance on this determination. The fee for this letter shall be as listed in Table 109.3.1.

SECTION G104 ADMINISTRATION

G104.1 Floodplain Permit. A floodplain development permit shall be required for all proposed construction or other development, including the placement of manufactured homes, in the areas described in Section M103.1. No person, firm, corporation, or unit of government shall initiate any development or substantial improvement or cause the same to be done without first obtaining a separate floodplain development permit for each structure or other development.

G104.2 Designation of Floodplain Administrator. The Missouri licensed design professional as designated by the Building Commissioner is hereby appointed to administer and implement the provisions of this appendix.

G104.3 Duties and Responsibilities of Floodplain Administrator. The duties of the Floodplain Administrator shall include, but not be limited to:

1. Review of all applications for floodplain development permits to ensure that sites are reasonably safe from flooding and that the floodplain development permit requirements of this appendix have been satisfied;

2. Review of all applications for floodplain development permits for proposed development to ensure that all necessary permits have been obtained from federal, state, or local governmental agencies from which prior approval is required by federal, state, or local law;

3. Review all subdivision proposals and other proposed new development, including manufactured home parks or subdivisions, to determine whether such proposals will be reasonably safe from flooding;

4. Issue floodplain development permits for all approved applications;

5. Notify adjacent communities and the Missouri State Emergency Management Agency (SEMA) prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency (FEMA);

6. Ensure that the flood-carrying capacity is not diminished and shall be maintained within the altered or relocated portion of any watercourse;

7. Verify and maintain a record of the actual elevation (in relation to mean sea level) of the lowest floor, including basement, of all new or substantially improved structures;

8. Verify and maintain a record of the actual elevation (in relation to mean sea level) that the new or substantially improved nonresidential structures have been floodproofed; and

9. When floodproofing techniques are utilized for a particular nonresidential structure, the Floodplain Administrator shall require certification from a Missouri licensed design professional.

G104.4 Application for Floodplain Development Permit. To obtain a floodplain development permit, the applicant shall first file an application in writing on a form furnished for that purpose. Every floodplain development permit application shall:

1. Describe the land on which the proposed work is to be done by lot, block, and tract, house and street address, or similar description that will readily identify and specifically locate the proposed structure or work;

2. Identify and describe the work to be covered by the floodplain development permit;

3. Indicate the use or occupancy for which the proposed work is intended;

4. Indicate the assessed value of the structure and the fair market value of the improvement;

5. Specify whether development is located in designated flood fringe or floodway;

6. Identify the existing base flood elevation and the elevation of the proposed development;

7. Give such other information as reasonably may be required by the Floodplain Administrator;

8. Be accompanied by plans and specifications for proposed construction; and

9. Be signed by the permittee or his authorized agent who may be required to submit evidence to indicate such authority.

SECTION G105 PROVISIONS FOR FLOOD HAZARD REDUCTION

G105.1 General Standards.

1. No permit for floodplain development shall be granted for new construction, substantial-improvements, and other improvements, including the placement of manufactured homes, within any numbered or unnumbered A zones and AE zones unless the conditions of this section are satisfied.

2. All areas identified as unnumbered A zones on the FIRM are subject to inundation of the 100-year flood; however, the base flood elevation is not provided. Development within unnumbered A zones is subject to all provisions of this appendix. If Flood Insurance Study data is not available, the community shall obtain, review, and reasonably utilize any base flood elevation or floodway data currently available from federal, state, or other sources.

3. Until a floodway is designated, no new construction, substantial improvements, or other development, including fill, shall be permitted within any numbered A zone or AE zone on the FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the community.

4. All new construction, subdivision proposals, substantial-improvements, prefabricated structures, placement of manufactured homes, and other developments shall require:

A. Design or adequate anchorage to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

B. Construction with materials resistant to flood damage;

C. Utilization of methods and practices that minimize flood damages;

D. All electrical, heating, ventilation, plumbing, air-conditioning equipment, and other service facilities be designed or located so as to prevent water from entering or accumulating within the components during conditions of flooding;

E. New or replacement water supply systems or sanitary sewage systems be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters, and on-site waste disposal systems be located so as to avoid impairment or contamination; and

F. Subdivision proposals and other proposed new development, including manufactured home parks or subdivisions, located within special flood hazard areas are required to ensure that:

I. All such proposals are consistent with the need to minimize flood damage;

II. All public utilities and facilities, such as sewer, gas, electrical, and water systems are located and constructed to minimize or eliminate flood damage;

III. Adequate drainage is provided so as to reduce exposure to flood hazards; and

IV. All proposals for development, including proposals for manufactured home parks and subdivisions, of five acres or 50 lots, whichever is lesser, include within such proposals base flood elevation data.

5. Storage, material, and equipment.

A. The storage or processing of materials within the special flood hazard area that are in time of flooding buoyant, flammable, explosive, or could be injurious to human, animal, or plant life is prohibited.

B. Storage of other material or equipment may be allowed if not subject to major damage by floods, if firmly anchored to prevent flotation, or if readily removable from the area within the time available after a flood warning.

6. Accessory structures. Structures used solely for parking and limited storage purposes, not attached to any other structure on the site, of limited investment value, and not larger than 400 square feet, may be constructed at-grade and wet-floodproofed provided there is no human habitation or occupancy of the structure; the structure is of single-wall design; a variance has been granted from the standard floodplain management requirements of this appendix; and a floodplain development permit has been issued.

G105.2 Specific standards. In all areas identified as numbered and unnumbered A zones and AE zones where base flood elevation data have been provided as set forth in Section G105.1, the following provisions are required:

1. *Residential Construction.* New construction or substantial improvement of any residential structures, including manufactured homes, shall have the lowest floor, including basement, elevated to or above one foot above base flood elevation.

2. *Nonresidential Construction*. New construction or substantial improvement of any commercial, industrial, or other nonresidential structures, including manufactured homes, shall have the lowest floor, including basement, elevated to or above one foot above the base flood elevation or, together with attendant utility and sanitary facilities, be floodproofed so that below the base flood elevation the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subsection are satisfied. Such certification shall be provided to the Floodplain Administrator as set forth in Section G104.3(9).

3. Require, for all new construction and substantial improvements, that fully enclosed areas below lowest floor used solely for parking of vehicles, building access, or storage in an area other than a basement and that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

A. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided; and

B. The bottom of all openings shall be no higher than one foot above grade. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

G105.3 Manufactured Homes.

1. All manufactured homes to be placed within all unnumbered and numbered A zones and AE zones on the community's FIRM shall be required to be installed using methods and practices that minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors.

2. Require manufactured homes that are placed or substantially improved within unnumbered or numbered A zones and AE zones on the community's FIRM on sites:

A. Outside of manufactured home park or subdivision;

B. In a new manufactured home park or subdivision;

C. In an expansion to and existing manufactured home park or subdivision; or

D. In an existing manufactured home park or subdivision on which a manufactured home has incurred substantial-damage as the result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated to or above one foot above the base flood elevation and be securely attached to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

3. Require that manufactured homes to be placed or substantially improved on sites in an existing manufactured home park or subdivision within all unnumbered and numbered A zones and AE zones on the community's FIRM that are not subject to the provisions of Section G105.3(2) of this appendix be elevated so that either:

A. The lowest floor of the manufactured home is at or above one foot above the base flood level; or

B. The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than 36 inches in height above grade and be securely attached to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

G105.4 Floodway. Located within areas of special flood hazard established in Section G103.1 are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of flood waters that carry debris and potential projectiles, the following provisions shall apply:

1. The community shall select and adopt a regulatory floodway based on the principle that the area chosen for the regulatory floodway must be designed to carry the waters of the base flood without increasing the water surface elevation of that flood more than one foot at any point.

2. The community shall prohibit any encroachments, including fill, new construction, substantial-improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

3. If Section G105.4(2) is satisfied, all new construction and substantial-improvements shall comply with all applicable flood hazard reduction provisions of Section G105.

4. In unnumbered A zones, the community shall obtain, review, and reasonably utilize any base flood elevation or floodway data currently available from federal, state, or other sources as set forth in Section G105.1(2).

G105.5 Recreational Vehicles. Require that recreational vehicles placed on sites within all unnumbered and numbered A zones and AE zones on the community's FIRM either:

1. Be on the site for fewer than 180 consecutive days; or

2. Be fully licensed and ready for highway use; or

3. Meet the permitting, elevation, and the anchoring requirements for manufactured homes of this appendix.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick-disconnect type utilities and security devices, and has no permanently attached additions.

SECTION G106 FLOODPLAIN MANAGEMENT VARIANCE PROCEDURES

G106.1 Establishment of Appeal Board. The Board of Building Appeals as established by City of Saint Louis shall hear and decide appeals and requests for variances from the floodplain management requirements of this appendix.

G106.2 Responsibility of Appeal Board. Where an application for a floodplain development permit or request for a variance from the floodplain management regulations is denied by the Floodplain Administrator, the applicant may apply for such floodplain development permit or variance directly to the Appeal Board, as defined in Section G106.1.

The Board of Building Appeals shall hear and decide appeals when it is alleged that there is an error in any requirement, decision, or determination made by the Floodplain Administrator in the enforcement or administration of this appendix.

G106.3 Further Appeals. Any person aggrieved by the decision of the Board of Building Appeals may appeal such decision to the Circuit Court as provided in state statute.

G106.4 Floodplain Management Variance Criteria. In passing upon such applications for variances, the Board of Building Appeals shall consider all technical data and evaluations, all relevant factors, standards specified in other sections of this appendix, and the following criteria:

1. The danger to life and property due to flood damage;

2. The danger that materials may be swept onto other lands to the injury of others;

3. The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

4. The importance of the services provided by the proposed facility to the City;

5. The necessity to the facility of a waterfront location, where applicable;

6. The availability of alternative locations, not subject to flood damage, for the proposed use;

7. The compatibility of the proposed use with existing and anticipated development;

8. The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

9. The safety of access to the property in times of flood for ordinary and emergency vehicles;

10. The expected heights, velocity, duration, rate of rise and sediment transport of the flood waters, if applicable, expected at the site; and

11. The costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems; streets; and bridges.

G106.5 Conditions for Approving Floodplain Management Variances.

1. Generally, variances may be issued for new construction and substantial-improvements to be erected on a lot of ½ acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing items 2 through 6 below have been fully considered. As the lot size increases beyond the ½ acre, the technical justification required for issuing the variance increases.

2. Variances may be issued for the reconstruction, rehabilitation, or restoration of structures listed on the National Register of Historic Places, the State Inventory of Historic Places, or local inventory of historic places upon determination provided the proposed activity will not preclude the structure's continued historic designation.

3. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

4. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

5. Variances shall only be issued upon (a) a showing of good and sufficient cause, (b) a determination that failure to grant the variance would result in exceptional hardship to the applicant, and (c) a determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or appendices.

6. The City of Saint Louis shall notify the applicant in writing over the signature of a City official that (a) the issuance of a variance to construct a structure below base flood level will result in increased premium rates for flood insurance up to amounts as high as $25.00 for $100.00 of insurance coverage and (b) such construction below the base flood level increases risks to life and property. Such notification shall be maintained with the record of all variance actions as required by this appendix.

G106.6. Conditions for Approving Variances for Accessory Structures. Any variance granted for an accessory structure shall be decided individually based on a case by case analysis of the building's unique circumstances. Variances granted shall meet the following conditions as well as those criteria and conditions set forth in Sections G106.4 and G106.5 of this appendix.

In order to minimize flood damages during the 100-year flood and the threat to public health and safety, the following conditions shall be included for any variance issued for accessory structures that are constructed at-grade and wet-floodproofed.

1. Use of the accessory structures must be solely for parking and limited storage purposes in zone A only as identified on the City's Flood Insurance Rate Map (FIRM).

2. For any new or substantially damaged accessory structures, the exterior and interior building components and elements (i.e., foundation, wall framing, exterior and interior finishes, flooring, etc.) below the base flood elevation must be built with flood-resistant materials in accordance with Section G105.1(4.2) of this appendix.

3. The accessory structures must be adequately anchored to prevent flotation, collapse, or lateral movement of the structure in accordance with Section G105.1 (4.1) of this appendix. All of the building's structural components must be capable of resisting specific flood-related forces including hydrostatic, buoyancy, and hydrodynamic and debris impact forces.

4. Any mechanical, electrical, or other utility equipment must be located above the base flood elevation or floodproofed so that they are contained within a watertight, floodproofed enclosure that is capable of resisting damage during flood conditions in accordance with Section G105.1 (4.4).

5. The accessory structures must meet all National Flood Insurance Program (NFIP) opening requirements. The NFIP requires that enclosure or foundation walls subject to the 100-year flood contain openings that will permit the automatic entry and exit of flood waters in accordance with Section G105.2 (1.3).

6. The accessory structures must comply with the floodplain management floodway encroachment provisions of Section G105.4. No variances may be issued for accessory structures within any designated floodway if any increase in flood levels would result during the 100-year flood.

7. Equipment, machinery, or other contents must be protected from any flood damage.

8. No disaster relief assistance under any program administered by any federal agency shall be paid for any repair or restoration costs of the accessory structures.

9. The City shall notify the applicant in writing over the signature of a City official that (a) the issuance of a variance to construct a structure below base flood level will result in increased premium rates for flood insurance up to amounts as high as $25.00 for $100.00 of insurance coverage and (b) such construction below the base flood level increases risks to life and property. Such notification shall be maintained with the record of all variance actions as required by this appendix.

10. Wet-floodproofing construction techniques must be reviewed and approved by the City and registered professional engineer or architect prior to the issuance of any floodplain development permit for construction.

SECTION G107 PENALTIES FOR VIOLATION

G107.1 Scope. Violation of the provisions of this appendix or failure to comply with any of its requirements (including violations of conditions and safeguards established in connection with granting of variances) shall constitute a misdemeanor. Any person who violates this appendix or fails to comply with any of its requirements shall, upon conviction thereof, be fined not more than $500.00, and in addition, shall pay all costs and expenses involved in the case. Each day such violation continues shall be considered a separate offense. Nothing herein contained shall prevent the City of Saint Louis or other appropriate authority from taking such other lawful action as is necessary to prevent or remedy any violation.

SECTION G108 AMENDMENTS

G108.1 Scope. The regulations, restrictions, and boundaries set forth in this appendix may from time to time be amended, supplemented, changed, or appealed to reflect any and all changes in the National Flood Disaster Protection Act of 1973; provided, however, that no such action may be taken until after a public hearing in relation thereto at which parties of interest and citizens shall have an opportunity to be heard. Notice of the time and place of such hearing shall be published in a newspaper of general circulation in the City of Saint Louis. At least twenty days shall elapse between the date of this publication and the public hearing. A copy of such amendments will be provided to the Region VII office of the Federal Emergency Management Agency (FEMA). The regulations of this appendix are in compliance with the National Flood Insurance Program (NFIP) regulations.

The degree of flood protection required by this appendix is considered reasonable for regulatory purposes and is based on engineering and scientific methods of study. Larger floods may occur on rare occasions or the flood heights may be increased by manmade or natural causes such as ice jams and bridge openings restricted by debris. This appendix does not imply that areas outside the floodway and flood fringe or land uses permitted within such areas will be free from flooding

or flood damage. This appendix shall not create a liability on the part of the City of Saint Louis or any officer or employee thereof for any flood damages that may result from reliance on this appendix or any administrative decision lawfully made thereunder.

APPENDIX H IS AMENDED AS FOLLOWS:

Change Section H101.2 to read as follows:

H101.2 New Signs. A new sign shall not hereafter be placed, erected, constructed, altered, or maintained except as provided herein and until a permit has been issued by the building official. All signs controlled and regulated by the Zoning Ordinance of the City of Saint Louis or this code shall require building permits.

Exceptions:

1. Ground-mounted political or campaign signs, 32 square feet or less in area, erected on any private property no earlier than 60 days prior to the primary and removed within 30 days after the general election. Violation of this exception will result in a seven day citation letter directed to the owner(s) of the property.
2. Temporary signs announcing the sale of property.
3. The changing of moveable parts of an approved sign that is designed for such changes or the repainting or repositioning of display matter shall not be deemed an alteration.

Add Sections H101.3 through H101.5 to read as follows:

H101.3 Permit Required. No person shall erect, construct, or maintain any sign described in this chapter until a permit for said sign has been issued by the building official. An application for said permit shall be filed with the building official accompanied by construction documents and specifications showing dimensions, materials, and details of the proposed sign. Until all the provisions of this chapter relating to such sign have been complied with and the prescribed fee for such permit has been paid to the building official, a permit shall not be issued.

H101.3.1 Permit Fees. Permit fees for all signs shall be charged at the rate listed in Table 109.3.3.

H101.4 Additional Application Information. All additional application information as required to evaluate the sign's conformance with the Zoning Ordinance of the City of Saint Louis shall be provided.

H101.5 Removal. The building official is authorized to order the removal of any sign that is not maintained in accordance with the provisions of this code. The removal of any sign, including billboards, shall not require a demolition permit but shall require a building permit to alter the sign by removal and shall not be subject to review by the Cultural Resource Office.

Change Section H114.1 to read as follows:

H114.1 In Street or Sidewalk Area. Portable signs shall not be located on public streets or sidewalk areas. Enforcement of this shall be by the Street Department. (Ord. No. 71991, § 2, 2-24-2025; Ord. No. 71990, § 3, 2-25-2025; Ord. No. 71742, § 1, 11-14-2023; Ord. No. 71284, §§ 1—3, 2-11-2021; Ord. No. 70794, § 3, 7-18-2018.)

25.01.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, shall be subject to, a fine as set forth in Section 25.33.040. Each day that a violation continues shall constitute a separate and distinct offense.

(Ord. No. 71990, § 2, 2-25-2025; Ord. No. 70794, § 4, 7-18-2018.)

Chapter 25.02

ELECTRICAL CODE

Editor's Note:

Ord. No. 70802, adopted July, 6, 2018, repealed and replaced Ord. No. 68831. Ord. No. 68831, adopted Feb. 3, 2011, repealed Ch. 25.02 and enacted a new chapter. The former Ch. 25.02, §§ 25.02.010—25.02.050, pertained to similar subject matter and derived from Ord. No. 65020, §§ 2 and 3, 2000.

Prior ordinance history:

Ords. 68831, 60827, 61751, 63150 and 63620

Sections:

25.02.010 Adopted.
25.02.020 Amendments.
25.02.030 Penalty.

25.02.010 Adopted.

The 2017 National Electrical Code as published by the National Fire Protection Association, Inc., one copy of which is on file in the office of the Register of

the City of Saint Louis, is hereby adopted as the Electrical Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity

with Section 71.943 RSMo for the governing of the design, installation, construction, and maintenance of electrical systems by providing reasonable safeguards to protect the public health and safety against the hazards of inadequate, defective, or unsafe electrical systems and installations as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said National Electrical Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.02.020. If differences occur between a provision modified by this chapter and a provision adopted without modifications, then the modified provision shall control. (Ord. No. 70802, § 2, 7-6-2018.) RSMo: RSMo 67.280 (2016) Adoption of technical codes by reference

25.02.020 Amendments.

The 2017 National Electrical Code is amended and changed in the following respects:

ARTICLE 100 IS AMENDED AS FOLLOWS:

Add Definitions in Article 100 to read as follows:

Administrative authority: The individual, official, board, department, or agency established and authorized by the City of Saint Louis to administer and enforce the provisions of the Electrical Code as adopted or amended. Except as otherwise noted in this code, the Administrative Authority, also referred to as the code official, shall mean the Building Commissioner or the Chief Electrical Inspector or duly authorized employees.

Employee: A person directly employed by a person, firm, corporation, or a limited liability company or other business entity, institution, or organization (license holder as defined in Section 80.21) for wages or salary.

Add new Subsection 110.24 to read as follows:

110.24 Seismic. When seismic bracing is required by the Building Code on any project, electrical systems shall also be braced in accordance with nationally recognized standards.

ANNEX H/ARTICLE 80 IS AMENDED AS FOLLOWS:

Delete Annex H as printed,

Adopt and change Annex H to read as follows:

ANNEX H

ADMINISTRATION AND ENFORCEMENT

80.1 General.

80.1.1 Title. These regulations shall be known as the Electrical Code of the City of Saint Louis, hereinafter referred to as "this code."

80.1.2 Scope. The design, installation, maintenance, alteration, and inspection of electrical systems shall comply with the requirements of this code.

80.1.3 Intent. This code shall be construed liberally and justly to secure its expressed intent, which is to ensure public health, safety, and welfare insofar as they are affected by the installation and maintenance of electrical systems.

80.2 Applicability.

80.2.1 General. The provisions of this code shall apply to all matters affecting or relating to structures or premises as set forth in Section 80.1.1.

80.2.1.1 Matters Not Provided For. Any electrical requirement essential for the safety of an existing or proposed building or structure or for the safety of the occupants thereof and which is not specifically covered by this code shall be determined by the code official.

80.2.2 Existing Structures. The legal use and occupancy of any structure existing on the effective date of adoption of this code, or for which it has been heretofore approved, shall be continued without change except as shall be specifically covered in this code or the Property Maintenance Code.

80.2.3 Change in occupancy. It shall be unlawful to make any change in the use or occupancy of any structure which will subject the structure to any special provisions of this code without approval of the code official. The code official shall certify that such structure meets the intent of the provisions of law governing building construction for the proposed new use and occupancy and that such change does not result in any hazard to public health, safety, or welfare.

80.2.3.1 Continuation of Unlawful Use. The continuation of occupancy or use of a building or structure or part thereof contrary to the provisions of this code shall be deemed a violation and subject to the penalties prescribed in 80.15.4.

80.2.4 Alterations Or repairs. Alterations or repairs to any electrical system shall conform to that required for a new electrical system without requiring the existing electrical system to comply with all the requirements of this code, except as stated in 80.2.2.

Alterations or repairs shall not cause an existing electrical system to become unsafe nor adversely affect the performance of the electrical system.

80.2.4.1 Additional Loads. Where additions or alterations subject parts of existing systems to loads exceeding those permitted herein, such parts shall be made to comply with this code.

80.2.5 Referenced Standards. Where differences occur between provisions of this code and referenced standards, the provisions of this code shall apply.

80.3 Repairs and Maintenance.

80.3.1 Repairs. Minor repairs or replacement of any existing system are permitted to be made in the same manner and arrangement as in the existing system, provided such repairs or replacement are made in a safe manner and are approved. Minor repairs or replacement for purposes of this code shall be defined as:

1. Replacement of a convenience outlet, except where the existing outlet is of the ungrounded type when replaced with grounding type that requires new wiring to provide grounding connection. Replacement units shall have the same current carrying capacity as the existing outlet.

2. Light switch with the same current carrying capacity as the existing switch.

3. Light socket and holder.

4. Light fixture (1 maximum) installed on the same outlet box and having the same current rating.

5. Within a dwelling unit, a fan, blower, pump, or other fractional horsepower motors of the same horsepower rating and having the same electrical characteristics and current rating as the existing, limited to 240 volts.

80.3.2 Maintenance. All electrical systems, both existing and new, shall be maintained in a safe condition. All service equipment, devices, and safeguards which are required by this code or which were required in a building or structure by previous statute shall be maintained in working order. All abandoned electrical/communications systems shall be removed and disposed in a lawful manner.

80.3.2.1 Abandoned or Unsafe Wiring, Electrical Equipment, Fixtures, and Devices. Installed wiring, electrical equipment, fixtures, or devices of any premises found to be in an unsatisfactory or hazardous condition shall be repaired, renovated, replaced, or removed immediately subsequent to the issuance of a written notice of the unsafe or hazardous condition by the Electrical Inspection Section of the Division of Building and Inspection.

80.3.3 Responsibility. The owner, the owner's agent, or the person collecting rent shall be responsible for the safe maintenance of the electrical system in any building or structure at all times.

80.4 Validity.

80.4.1 Partial Invalidity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions thereof which are determined to be legal; and it shall be presumed that this code would have been passed without such illegal or invalid parts or provisions.

80.4.2 Segregation of Invalid Provisions. Any invalid part of this code shall be segregated from the remainder of the code by the court holding such part invalid and the remainder shall remain effective.

80.4.3 Existing Structures. The invalidity of any provision in any section of this code as applied to existing buildings, premises, and structures shall not be held to affect the validity of such section in its application to buildings and structures hereafter erected unless otherwise ordered by the Court.

80.5 Code Official.

80.5.1 General. There is a Section of Electrical Regulations and Inspections within the Division of Building and Inspection which shall have control and enforce all codes, regulations, and ordinances pertaining to electrical installations and systems in accordance with this code.

The head of this Section shall be known as the Chief Electrical Inspector and shall be appointed by the Building Commissioner. Throughout this code, the Building Commissioner, the Chief Electrical Inspector, and their authorized employees shall be referred to as the code official. The Building Commissioner shall be the final decision maker as to the interpretation of this code.

80.5.2 Chief Electrical Inspector. There shall be appointed by the Building Commissioner a Chief Electrical Inspector. The Chief shall have ten years' experience and possess the qualifications established by the Department of Personnel.

80.5.2.1 Electrical Inspectors. There shall be appointed by the code official a sufficient number of electrical inspectors to adequately perform all inspection duties and enforce all ordinances pertaining to the

Section of Electrical Regulation and Inspection in accordance with subsequent sections of this code and City of Saint Louis budgetary constraints. All electrical inspectors shall have had at least five years' experience in the electrical industry and possess the qualifications set forth by the Department of Personnel. One such inspector shall assist the Chief Electrical Inspector. The assistant shall assume the responsibilities of the Chief Electrical Inspector in the Chief's absence.

80.5.3 Relief from Personal Responsibility. The code official and employees charged with the enforcement of this code, while acting for the City of Saint Louis, shall not thereby be rendered liable personally, and are hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act required or permitted in the discharge of official duties. Any suit instituted against any code official or employee because of an act performed in the lawful discharge of duties and under the provisions of this code shall be defended by the legal representative of the City of Saint Louis until the final termination of the proceedings. The code official or any employees shall not be liable for any cost in or arising from any action, suit, or proceeding that is instituted in pursuance of the provisions of this code. Any code official or employee of the Division of Building and Inspection, Department of Public Safety, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

80.5.4 Restriction of Employees. Any code official or employee connected with the Electrical Inspection Section, except one whose only connection is that of a member of the Board of Building Appeals established under the Building Code or the Committee of Electrical Examiners, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building within the City of Saint Louis or the preparation of construction documents thereof unless that person is the owner of the building; nor shall such code official or employee engage in any work that conflicts with official duties or with the interests of the department.

80.6 Duties and Powers of the Code Official.

80.6.1 General. The code official shall enforce all of the provisions of this code and shall act on any question relative to the mode or manner of construction and the materials to be used in the installation of electrical work except as otherwise specifically provided for by other requirements or in the following Sections 80.6.1.1 through 80.6.7.

80.6.1.1 Suspensions and Cancellations. The code official shall have the power to recommend to the Committee of Electrical Examiners a suspension or revocation of any license granted hereunder if, after notice and opportunity to be heard, the party named therein is found guilty by the Committee of Electrical Examiners of violating this chapter or the rules and regulations established by this chapter. The Committee of Electrical Examiners shall be obligated without further hearing to suspend or revoke such license.

80.6.1.2 Emergency Condemnation. Whenever the code official shall find any building, structure, premises, or portion thereof no matter for what purpose used to be in an unsafe or dangerous condition and that there is an actual and potential danger to the occupants or those in the proximity of any building, structure, or premises which poses an immediate danger to public safety or welfare, the code official shall order the immediate evacuation of said building, structure, or premises. All of the occupants so notified shall immediately vacate the building, structure, or premises and no person shall reenter until authorized to do so by the code official.

Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order, except such person(s) directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone from reentering the building, structure, or premises until such time that the Police Department shall have been notified that the same is in a safe condition. Any person who shall violate any provisions of this section shall be, upon conviction, subject to the penalties as provided in 80.15.4.

80.6.1.3 Authority to Placard. The code official has the authority to post a placard in a conspicuous place on a building or premises where the electrical system has been found to be unsafe or inadequate.

80.6.1.4 Placarded Building. Placards shall remain on said building until the required repairs, replacements, or improvements have been made and accepted by the code official and it shall be unlawful to deface or willfully remove any such placard that has been posted on a building without first obtaining consent of the code official. It shall be unlawful for any person to reside in, use, rent, lease, or occupy such building for any purpose while so placarded.

80.6.2 Applications and Permits. No wiring system or electrical equipment shall be installed within or on any building, structure, or premises nor shall any alterations or additions be made in any such existing installations without first filing in the office of the code official an application for a permit to do the work contemplated. Such application shall describe in detail the nature of the work, the location thereof by street and number, the date of the beginning of such work, and the tentative completion date thereof. No person shall begin such work unless and until they shall have submitted a proper application and received a permit. In the case of an emergency, work shall be permitted to begin upon the verbal request of the license holder and verbal permission of the code official upon the condition that a written application shall be filed in the office of the code official per the code official's instructions. No permit provided for in this section shall be assignable or transferable or used to aid or abet any non-licensed person in the performance of electrical work. Should the code official find that permitted work is completed in accordance with the provisions of this code, the official shall, upon the payment of the prescribed inspection fee, approve such work. If the code official should find that the work is not completed in accordance with the provisions of this code or that the work was done by a non-employee as hereinafter provided, the code official is hereby empowered and directed, in addition to the other penalties in this code, to order the electric power company to disconnect the electric service or power from the building, structure, or premises where such work has been done or disconnect the electric service or power from that portion of the building, structure, or premises where such work was done. It shall be unlawful to use, permit the use of, or supply electric current for heating, lighting, or power in any building, structure, or premises unless the required permit has been issued by the code official.

Exceptions:

1. Minor repair work including the replacement of lamps, fuses, or breakers up to 60 amps.

2. The installation, alteration, or repair work performed by a Public Service Agency or Public Utility of communication equipment located outdoors or in building spaces used exclusively for such installations (commonly known as regulated work) up to the customer's point of demarcation and which is under the exclusive control of that utility or agency.

3. The installation, alteration, or repair of electrical equipment of a power or public service company for its use in the generation, transmission, distribution, or metering of electricity.

4. Buildings, structures, or premises owned and operated by the United States of America or the State of Missouri.

5. The installation, alteration, or repair of elevator systems, escalators, moving walks, dumbwaiters, and lifts when inspection and tests are performed in accordance with Missouri Statute 701.359 - 701.380 and the Code of State Regulations (Rules of the Department of Public Safety, Division 40-Division of Fire Safety, Chapter 5-Elevators).

6. Temporary movie sets where there is no public participation.

80.6.2.1 Homeowners. The owner of a single-family dwelling which is owner occupied and used exclusively for living purposes along with the usual accessory buildings may apply for an electrical permit. The homeowner who qualifies as above must pass a written test which will be given to each applicant one time only for each scope of work. This test will be administered without charge. The applicant shall pay the permit fees required by this code. The homeowner will personally purchase all materials and personally perform all labor in connection with the permit being issued. This permit shall be limited to a room addition, repairs, modifications of existing systems, or burglar alarm systems and shall not include electrical service changes, rehab, or new construction.

80.6.3 Notices and Orders. The code official shall issue all necessary notices or orders to ensure compliance with this code. The notice to the person having responsibility for the building or structure found by the code official to be dangerous or in violation of this code shall be directed to that person by name, if known; if not known, then under the name of the owner or

owners of the building or structure as indicated by the records of the Saint Louis Recorder of Deeds Office, and shall be served in any one of the following ways:

1. Deliver to owner - by causing said notice to be delivered to such owner, either in the City of Saint Louis or elsewhere.

2. Posting - by posting a copy of such notice upon the building or structure or premises.

3. Mailing - by mailing such notice or copy thereof enclosed in a sealed envelope, postage prepaid, directed to such owner either at the owner's place of business or residence address in the City or elsewhere, said notice to be deemed served twenty-four hours after the mailing of said notice, in case it is directed to the business or residence address of the owner in the City. Provided that if said owner or owners be nonresidents of the City and have no business addresses or offices in the City, then the said notice shall be deemed served at the end of such period after the mailing thereof as in the ordinary course of transmission of the mail by the United States Postal Service.

4. Publication - by publication in a newspaper of general circulation in the City of Saint Louis or in the "The City Journal," said notice to be deemed served twenty-four hours after publication.

80.6.4 Inspections. The code official shall make all of the required inspections or shall be permitted to accept reports of inspection by authoritative and recognized services or individuals. All reports of such inspections shall be in writing and certified by a responsible officer of such authoritative service or by the responsible individual. The code official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise. All inspections shall be deemed valid for 30 days.

80.6.5 Identification. The code official shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

80.6.6 Rule Making Authority. The code official shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code to secure the intent thereof and to designate requirements applicable because of local climatic or other conditions. Such rules shall have the effect of furthering safety.

80.6.7 Department Records. The code official shall keep official records of electrical applications received, permits, licenses issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for three years except notices and orders which have been complied with need not be kept.

80.7 Approval.

80.7.1 Approved Materials and Equipment. All materials, equipment, and devices shall be approved by a nationally recognized testing agency and shall be constructed and installed in accordance with such approval.

80.7.2 Modifications. For minor variations and where there are practical difficulties or undue hardship, the code official shall have the right to vary or modify the provisions of this code upon application by the owner or the owner's representative, provided that the spirit and intent of the law is observed and public health, safety, and welfare is ensured.

80.7.3 Materials and Equipment Reuse. Materials, equipment, and devices shall not be reused unless such elements have been reconditioned, tested, and placed in good and proper working condition and approved by the code official.

80.7.4 Alternative Materials and Equipment. The provisions of this code are not intended to prevent the use of any material or equipment not specifically prescribed by this code provided that any such alternative has been approved. An alternative material, equipment, or method of construction shall be approved where the code official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire-resistance, durability, and safety.

80.7.4.1 Research and Investigations. Sufficient technical data shall be submitted by the applicant to substantiate the proposed use of any material or assembly. If it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the code official shall approve its use subject to the requirements of this code. The costs of all tests, reports, and investigations required under these provisions shall be paid by the applicant.

80.8 Application for Permit.

80.8.1 Permit Required. No person shall commence any electrical work until a permit for such work has been issued by the code official. An electrical permit is not required for minor repairs as defined in

Section 80.3.1. The fees for said permits shall be paid to the City of Saint Louis for each permit herein required. All work shall be done by a certified employee, firm, corporation, limited liability company, or other business entity, institution, or organization who holds an electrical license in whose name the permit or permits required by this section and Section 80.21.3 are issued. Any person, firm, or corporation who shall fail to comply with or who shall violate any of the provisions of this section or the permit shall be subject to the penalty provisions of Section 80.15.4.

80.8.2 Form. The application for a permit for electrical work shall be recorded on forms prepared and provided by the code official and accompanied by an adequate written description of the proposed electrical work.

80.8.3 By Whom Application Is Made. The application for a permit shall be made by the license holder responsible for the installation of all or part of any electrical system.

80.8.4 Description of Work. The applicant shall describe the work to be installed, the location of the work, the cost of the work, the use and occupancy of the building in which the work is to be performed, and the date such work is to commence.

80.8.5 Construction Documents. The code official is authorized to require the submission and approval of construction documents in triplicate showing the nature and extent of the proposed work before a permit is issued. If, in the course of the work, it is found necessary to make any change from the approved construction documents on which a permit has been issued, amended construction documents shall be submitted and, if approved, a supplementary permit shall be issued to cover the change after the same conditions required to secure the original permit have been satisfied.

80.8.6 Amendments to Application. Subject to the time limitations of Section 80.9.2, amendments to the construction documents, application or other records accompanying the same shall be filed at any time before completion of the work for which the permit is sought or issued. Such amendments shall be deemed part of the original application and shall be filed in the same manner as the original.

80.9 Permits.

80.9.1 Action on Application. The code official shall examine or cause to be examined all applications for permits and amendments thereto. If the application or construction documents do not conform to the requirements of all pertinent laws relating to electrical systems, such application shall be rejected in writing, by fax, or by phone stating the reasons therefor. If the code official is satisfied that the proposed work conforms to the requirements of this code and all laws and ordinances applicable thereto, a permit shall be issued as soon as practicable. An electrical permit shall not be transferable.

80.9.2 Time Limitation of Permit. A permit for any proposed work shall be deemed to have been abandoned six months after the date of filing, except rehabs and new construction for one year, unless such permit has been diligently prosecuted. If abandonment has occurred, initial fees due, plus any penalties, shall still be paid and re-application submitted together with new fees. The code official shall be permitted to grant one or more extensions of time for additional periods not exceeding one hundred eighty days if there is reasonable cause.

80.9.3 Previous Approvals. Except for unsafe electrical systems or installations, this code shall not require changes in the electrical system of a building for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the installation of which shall have been actively prosecuted within 90 days after the effective date of this code and completed with dispatch.

80.9.4 Revocation of Permit. The code official shall revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or on the construction documents upon which the permit or approval was based. A permit shall also be considered for revocation under the following provisions:

1. The owner of the property or the contractor shall request cancellation in writing stating the reasons for the request for cancellation. No refund of fees shall be made.

2. The code official shall be permitted to revoke the permit for fraud, misrepresentation on the application for permit, for noncompliance with the code, or for failure to pay the prescribed fees.

80.9.4.1 Work Not in Compliance. Should the electrical contractor install work that is not in compliance with the Electrical, Fire, or Building Code, the contractor shall be directed by the code official to make necessary corrections to assure code compliance and no other permits shall be issued to said contractor until

such work is corrected and approved by the code official. Violations shall be corrected within 30 calendar days from notice of noncompliance.

80.9.5 Approval in Part. The code official is authorized to issue a permit for the installation of part of an electrical system before the application for the whole system has been submitted, provided adequate information and detailed statements have been filed complying with all the pertinent requirements of this code. Holders of such permits shall proceed at their own risk with the work and without assurance that a permit for the entire system shall be granted. No premises shall be energized until an appropriate electrical inspection is completed and a permit is issue for any interior modification.

80.9.6 Start of Work. An application for a permit shall be made to the code official at least 24 hours prior to start of work except for emergency work as set forth in Section 80.6

80.10 Moved Structures.

80.10.1 General. Before any structure that has been moved within or into the City of Saint Louis is occupied, the electrical system shall be inspected and tested for safe operation and compliance with the requirements of this code. The testing shall be done by a licensed electrician.

Exception: Electrical systems within manufactured units bearing certification of the Missouri Public Service Commission.

80.11 Conditions of Permit.

80.11.1 Payment of Fees. A permit shall not be issued until the fees prescribed in Section80.12.2 have been paid. A permit shall be permitted to be revoked if payment is returned for insufficient funds.

80.11.2 Compliance with Code. The permit shall grant permission to proceed with the work and shall not be construed as authority to violate, cancel, or set aside any of the provisions of this code except as specifically stipulated by variation as granted by the Board of Building Appeals.

80.11.3 Compliance with Permit. All work shall conform to the approved application for which the permit has been issued and any approved amendments thereto.

80.12 Fees and Surcharges.

80.12.1 General. Fees for the inspection herein prescribed shall be paid to and collected by the City of Saint Louis. These fees shall be paid upon permit application or paid from an escrow account established by the contractor or license holder with the City of Saint Louis.

80.12.2 Fees. Table 80.12.2 represents the electrical inspection fees that are to be collected.

Table 80.12.2

ELECTRICAL INSPECTIONS FEES

Item	Inspection Fee 1st Unit	Inspection Fee Each Additional Unit	Fee	Remarks & Requirements
Application Fee			$25.00	
Acceptance Test Fee (a)			$200.00	Fire Alarm Testing
Acceptance Test Fee (Off Hours) (b)			$300.00	Fire Alarm Testing
Electrical Outlets (c)	$60.00	$2.00		Commercial/Industrial
Service Equipment under 600V (d)				Commercial/Industrial
a) Service up to and including 400A	$60.00	$60.00		
b) Service over 400A and up to and including 600A	$90.00	$90.00		
c) Service over 600A	$150.00	$150.00		
Service Equipment 600V & over (d)	$150.00	$150.00		Commercial/Industrial
Sub-Panels and Disconnects (e)	$50.00	$10.00		Commercial/Industrial
Transformers (f)	$50.00	$10.00		Commercial/Industrial
X-rays (g)	$60.00	$60.00		Commercial/Industrial
Carnivals - per location (h)	$75.00	$5.00		
Re-inspection (i)	$30.00	$30.00		Disconnected Service
Special inspection (j)	$30.00	$30.00		Property Maintenance
Re-inspection (k)			$50.00	Faulty or Incomplete Work
Re-inspection for Certification (l)			$125.00	

Item	Inspection Fee 1st Unit	Inspection Fee Each Additional Unit	Fee	Remarks & Requirements
Residential (m)				
Repair or modify	$60.00	$60.00		
Service only	$60.00	$60.00		
Repair or modify with service	$100.00	$100.00		
Residential new construction (n) including rehab of 50% or more	$120.00	$120.00		

Notes:

a) Fire Alarm Acceptance Test. The final inspection to insure that the newly installed fire alarm system and all components are functioning properly. This fee includes one follow-up inspection if the system does not comply on the first inspection. Any additional inspections after the initial follow-up will be assessed at the acceptance test fee.

b) Fire Alarm Acceptance Test (off hours). In addition to the initial fee for an acceptance test this fee is for inspections requested before 8am or after 5pm Monday-Friday or anytime during weekend hours.

c) Electrical Outlets. Each and every point on the electrical system where power or light is derived for any purpose whatsoever. Each point on communications, data, burglar or fire alarm equipment shall be considered an electrical outlet. In computing for signs, each 500W of load or fraction thereof shall be considered an electrical outlet. In computing outlets for fixtures, each fixture shall be counted as an electrical outlet. Each 10 feet or fraction thereof of raceways for future use shall be counted the same as outlets.

d) Service Equipment. Each and every point on the electrical system where power is derived from the public utility or a private generating plant.

e) Sub-Panels and Disconnects. Each and every point on the electrical system where disconnects or protective devices are mounted on individual panel or single framework.

f) Transformers. Each and every point on the electrical system where the primary voltage is either increased or decreased. This shall be limited to 25kW or larger.

g) X-Rays. Each and every point on the electrical system where an individual X-ray device or machine is served.

h) Carnivals. The fee shall be charged for the inspection of a carnival or circus wiring and electrical equipment. An inspection is required for every change of location.

i) Re-inspection - Disconnected Service. The fee shall be charged for re-inspection of structures or premises for which the electrical service has been not in use for a period of six months or more. It shall be unlawful to use, or permit the use of, or to supply electric current for heating, lighting or power in any structure or on any premises until the required re-inspection has been made. Should the required re-inspection not be applied for, the Electrical Inspection Supervisor shall order the electrical power company, who, upon receiving notice from the Electrical Inspection Supervisor shall immediately disconnect the electrical service or current to such building, structure or premises and no electric service shall be furnished until so ordered by the Electrical Inspection Supervisor.

j) Property Maintenance Inspection. The fee shall be charged for inspection of existing electrical systems made upon the request of the owner, tenant or buyer.

k) Re-inspection - Faulty or Incomplete Work. The fee shall be charged when a re-inspection is required due to faulty work, work not complete or unable to gain entry at the time of requested inspection. The re-inspection fee shall be doubled for each occurrence.

l) Re-inspection for Certification. Inspections of nursing homes, drug rehabilitation and similar facilities shall be made for an inspection fee of $125.00.

m) Residential - Rewiring. Inspections of rewiring, rehabilitation, additions and alterations to existing electrical wiring and equipment installation where no new electrical service is to be installed shall be made for a fee of $60.00 for the first residential (housing) unit and $60.00 for each additional unit in the same building. This shall include burglar and fire alarm systems and takeover of an existing system. Where new electrical service is to be installed in buildings designated and described above, and as part of additions and alterations to electrical systems and equipment installation, the fee shall be $100.00 for the first unit and $100.00 for each additional unit in the same building. Where a new electrical service(s) only is installed, the fee shall be $100.00 for the first unit and $100.00 for each additional unit in the same building.

n) Residential - New Construction/Rehab. Inspection of new construction, including new electrical service shall be made for a fee of $120.00 for the first residential (housing) unit and $120.00 for each additional unit in the same building.

80.12.2.1 City of Saint Louis Projects. Electrical permit fees shall be waived for contractors working in structures and property owned and operated by the City of Saint Louis. This shall apply only to those structures located within the geographic limits of the City of Saint Louis. However, permits and inspections shall be required.

80.12.3 Fees for Abandoned Work or Revoked Permit. Fees shall not be waived or forgiven for any elec-

trical permit that has been abandoned or revoked. The fees shall be computed from Table 80.12.2 as if all work had been completed.

80.12.4 Work Started Surcharge. In case any work for which a permit required by this code is started or proceeded with prior to the permit being issued, the total normal fees applicable shall be increased by the amount as set forth in Table 80.12.4. The payment of said surcharge shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 80.12.4

SCHEDULE FOR SURCHARGE ELECTRICAL PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

80.13 Inspection.

80.13.1 Installation. During the installation of electric systems and equipment, the code official shall make inspections to insure compliance with the provisions of this code.

Exception: Where applications for unusual design or magnitude of construction are filed or where code reference standards require special or engineering inspections, the code official is authorized to require project representation by an engineer. This project representative shall keep records and submit reports as required by the code official. This special professional service requirement shall be determined prior to the issuance of the permit and shall be a prerequisite for the permit issuance. All fees and costs related to the performance of special professional services shall be borne by the owner.

80.13.2 Concealing Work. Work in connection with an electric system shall not be covered or concealed until it has been inspected and permission to conceal has been approved. The code official shall have the authority to require any concealment to be removed. Failure to comply with this order of the code official shall result in condemnation of the structure or any part thereof and prohibition of occupancy.

80.13.2.1 Notice Before Concealing. Every contractor, after the completion of any electrical work, shall notify the Electrical Inspection Section before it is concealed. This notice shall describe in detail the work accomplished, giving the address by street and number, and the permit number; and thereupon the code official shall inspect same. The surcharge for failure to notify the code official before concealing work shall be as set forth in Table 80.12.4.

80.13.3 Final Inspections. Upon completion of the electrical work and before final approval is given, a final inspection shall be made. All violations of the code and any approved construction documents and permit shall be noted, and the holder of the permit shall be notified of the violations.

80.13.3.1 Notice. Every contractor, within twenty-four hours after the completion of any electrical work, shall notify the Electrical Inspection Section. This notice shall describe in detail the work accomplished, giving the address by street and number, and the permit number; and thereupon the code official shall inspect same. The surcharge for failure to notify the code official shall be as set forth in Table 80.12.4.

80.13.4 Re-Inspection - Discontinued Service. An electrical inspection shall be required on structures from which the service has been disconnected and structures which have not been in use for six months or more prior to the restoration of service. An application shall be made and the fee set forth in Table 80.12.2 shall be paid to receive such inspection. If the system is found to be satisfactory, the code official shall notify the electrical utility that service be restored.

80.13.5 Right of Entry. In the discharge of duties, the code official or an authorized representative shall have the authority to enter at any reasonable time any building, structure, or premises in the City of Saint Louis for which a permit has been issued and for which a notice of approval has not been issued in accordance with Section 80.17. For all other buildings, structures, or premises, when the code official has reasonable cause to believe that a code violation exists, the code official is authorized to enter the building, structure, or premises at reasonable times to inspect. Prior to entering a space not otherwise open to the general public, the code official shall make a reasonable effort to locate the owner or other person having charge or control of the building, structure, or premises, present proper identification, and request entry. If requested entry is refused or not obtained, the code official shall pursue recourse as provided by law.

80.13.6 Legal Compliance. All legal assistance necessary to effect compliance of the electrical systems of such premises with this section shall be supplied to the code official by the City Counselor and other City of Saint Louis agencies. The Fire and Police Departments of the City of Saint Louis shall, upon request, assist the code official in the enforcement of this code.

80.14 Workmanship.

80.14.1 General. All work shall be conducted, installed and completed in a workmanship-like manner so as to secure the results intended by this code.

80.15 Violations.

80.15.1 Unlawful Acts. It shall be unlawful to install, extend, alter, repair, or maintain electrical systems in or adjacent to buildings except in conformity with this code. It shall also be unlawful for any person, firm, or corporation to state, advertise, write, print, or in any way infer that they perform electrical work or hold a license as an electrical contractor, communications contractor, industrial electrician, or limited elevator electrical contractor in the City of Saint Louis without actually holding such license. This shall include, but not be limited to, business cards, bills, or advertising in any manner. In addition, it shall be unlawful to use a license in such a way that enables unlicensed persons, firms, corporations, limited liability company, or other business entity, institution, or organization without a license to perform work in the City of Saint Louis.

80.15.1.1 Unlawful Use. It shall be unlawful to use, permit the use of, or to supply electric current for heating, lighting, or power in any structure or on any premises until the required re-inspection has been made and a certificate of approval issued by the code official. Should the required inspection not be applied for and the certificate of approval not issued, the code official shall be permitted to order the electric power company to immediately disconnect the electric service, power, or current from such building, structure, or premises. The electric power company, upon receiving notice from the code official, shall immediately disconnect the electric service or current to such building, structure, or premises and no electric service or current shall be furnished until so ordered by the code official.

80.15.2 Notice of Violation. The code official shall serve a written notice of violation or order as heretofore described in Section 80.6.3 to the person, firm, or corporation, limited liability company, or other business entity, institution, or organization responsible for the installation of electrical work in violation of the provisions of this code, or in violation of a detailed statement or a plan approved thereunder, or in violation of a permit or license issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Failure to comply with the written order of the code official shall result in revocation of the bond or license of that person, firm, corporation, limited liability company, or other business entity, institution, or organization.

80.15.2.1 Method of Notice. If the inspection, reinspection, or test reveals failure of any new installation, addition, alteration, or replacement to comply with the provisions of this code, the installation shall be declared unlawful by the code official and a written notice of violation shall be given or mailed to either the responsible individual, person, firm, corporation, limited liability company, or other business entity, institution, or organization to whom the permit was issued, or to the owner of the structure, or both; or to the legally authorized representative of the permit holder, owner, or both.

80.15.3 Prosecution of Violation. If the notice of violation is not complied within 30 days, the code official shall be permitted to request the legal counsel of the City of Saint Louis to institute the appropriate proceedings at law or in equity to restrain, correct, or abate such violation, or to require the removal or termination of the unlawful use of any electrical system in violation of the provisions of this code or of the order or direction made pursuant thereto.

80.15.3.1 Noncompliance. On new construction, alterations, additions, or replacements, violations not complied within the time cited shall be permitted to be referred to court. On existing structures which involve occupancy, general rehabilitation, or other problems which involve the development of construction documents or issuance of a building permit, restoration to original occupancy, or other problems which require concurrent action by other departments of the City of Saint Louis, the code official shall be permitted to make the compliance date of any violation notice with regard to any given premises coincide with the compliance date of violations against the same premises by said other departments of the City of Saint Louis.

80.15.4 Violation Penalties. Any person, partnership, corporation, limited liability company, or other business entity, institution, or organization who shall violate any provision of this code or shall fail to comply

with any of the requirements thereof or who shall install electrical work in violation of approved construction documents or directive of the code official, or of a permit or license issued under the provisions of this code, shall be subject to immediate arrest and, upon conviction, be fined not more than $500.00 or by imprisonment not exceeding 30 days or both such fine and imprisonment. Each day that a violation continues shall be deemed as a separate and distinct offense.

80.15.5 Abatement of Violation. The imposition of the penalties herein prescribed shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction or to restrain, correct, or abate a violation, or to prevent illegal occupancy of a building, structure, or premises, or to stop an illegal act, the conduct of business, or the use of a building, structure, or premises.

80.15.6 Failure to Comply. Failure to comply with 80.15.1 through 80.15.5 will result in an imposition up to $500.00 fine that may be added to the tax assessment of the property owner or installing party, or both.

80.15.7 Appeals. Any owner or owners, tenant or tenants, lessee or lessees, occupant or occupants of such building, structure, or premises aggrieved by any action of the code official under the provisions of this chapter shall be permitted to appeal such action to the Board of Building Appeals as provided in the Building Code.

80.16 Stop Work Order.

80.16.1 Notice. Upon notice from the code official that work on any building or structure is being prosecuted contrary to the provisions of this code or in an unsafe and dangerous manner or without permit, such work shall be immediately stopped upon issuance of a stop work order. The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. It shall state the conditions under which work will be permitted to resume. The work shall not resume until approval is granted and the stop work order is lifted by the code official. Notwithstanding the provisions of any other ordinance, there shall be no automatic stay on an appeal of a stop work order.

80.16.2 Unlawful Continuance. Any person who shall continue any electrical work in or about the structure after having been served with a stop work order except such work as that person is directed to perform to remove a violation or unsafe conditions shall be subject to immediate arrest and, if convicted, be subject to the penalty provisions of Section 80.15.4.

80.17 Notice of Approval.

80.17.1 Approval. After final inspections indicate that the work complies in all respects with this code, a notice of approval shall be issued by the code official.

80.17.2 Partial Occupancy. Upon the request of the holder of a permit, the code official shall be permitted to issue a partial authorization before the entire work covered by the permit is completed, provided that such portion or portions will be put into service safely prior to full completion of the structure without endangering public health or welfare.

80.18 Unsafe Conditions.

80.18.1 General. All electrical installations, regardless of type, which constitute a hazard to human life, health, or welfare or to property are hereby declared illegal and shall be abated by repair and rehabilitation or removal, or by cessation of service.

80.19 Emergency Measures.

80.19.1 Imminent Danger. When there is an actual and immediate condition which would endanger life, the code official is hereby authorized and empowered to order and require the occupants to vacate a structure forthwith. The code official shall cause to be posted at each entrance to such structure a notice reading as follows: THIS STRUCTURE IS UNSAFE AND HAS BEEN CONDEMNED FOR OCCUPANCY. It shall be unlawful for any person to enter such structure except for the purpose of making the required repairs or removal. The procedure for this notice shall be as set out in the Building Code.

80.20 Committee of Electrical Examiners.

80.20.1 Qualifications; Appointment. The Mayor is hereby authorized and directed to appoint five persons to serve as members of the Committee of Electrical Examiners. One member shall be a journeyman electrician who shall have been engaged in the electrical business for a period of not less than five years; one member shall be a licensed electrical contractor who shall have continuously engaged in the electrical contracting business for at least five years; one member shall be a registered professional engineer specializing in electrical engineering; one member shall be a registered architect; one member shall be selected from the public at large. All members shall be residents of the City of Saint Louis and at least twenty-one years of age.

80.20.2 Term of Office. All appointments shall be made for a term of four years except appointments to fill vacancies which shall be for the unexpired term. The Committee shall select one of its members who shall serve as Chairman until the Chairman's successor is elected. The Committee shall from time to time adopt such rules and regulations as be reasonably necessary to govern its procedure and to carry out the provisions of this article. All appointments shall be continuous until a successor or a re-appointment has been made.

80.20.3 Compensation. The members of the Committee of Electrical Examiners shall be compensated for services rendered on a per meeting basis as established by Civil Service provisions for such committees.

80.20.4 Meetings. The Committee of Electrical Examiners shall meet as directed by the Chairman.

80.20.5 Quorum. A majority of the members of said Committee shall constitute a quorum for the transaction of business. A quorum may constitute the use of electronic means.

80.20.6 Duties of the Committee of Electrical Examiners. It shall be the duty of the Committee of Electrical Examiners to maintain minutes of their meetings and to ascertain by written and oral examination the knowledge and experience of all applicants for a license to engage in the business as described in Section 80.21 of this code to issue, refuse to issue, suspend, or revoke the license to those who successfully pass the examinations of the Committee of Electrical Examiners. The examination shall be designed to test and ascertain the applicant's knowledge, skill, ability, and competency in practical electrical installations, electrical theory and practice, and the knowledge of the provisions of this code. The scores of all written and oral examinations and minutes of meetings shall be public record available for public inspection.

80.20.6.1 Retest. Upon failure to receive a passing grade of 75% or greater, the applicant shall wait 90 days before they may retest. If the applicant fails again they shall wait 180 days before they can retest. Each time the applicant must resubmit their application to the Board of Electrical Examiners for approval to retest. Applicants that resubmit after one year shall also be required to submit application fees from Table 80.21.8

80.20.7 Appeals. Whenever any person, firm, corporation, limited liability company, or other business entity, institution, or organization shall be aggrieved by any finding or decision of the code official regarding any matter covered by Section 80.21 of this Code, they shall appeal this finding or decision within thirty days to the Committee of Electrical Examiners. The Committee of Electrical Examiners shall be permitted to promulgate rules pertaining to the conduct of their Committee and prescribe the form of such appeal. The fee for such filing shall be as set forth in Table 80.21.8. The decision of the Committee of Electrical Examiners shall be permitted to be further appealed to the Board of Building Appeals within thirty days of the decision of the Committee of Electrical Examiners.

80.21 License.

80.21.1 Types of License. The Committee of Electrical Examiners shall grant the following licenses required to engage in the electrical contracting business. Contractor's licenses may be held for one contracting firm and their immediate employees. All employees of such firms shall be licensed as journeyman or apprentice electricians in accordance with Section 80.21.1.5.

80.21.1.1 Electrical Contractor's License. The Committee of Electrical Examiners shall grant a license to any person found to be qualified to engage in the business of installing, erecting, or altering any electrical service or equipment and making service corrections on material, wiring, fixtures, machinery, and other apparatus to be used or in use for the generation and utilization of electricity, the transmission of light, lighting (direct or indirect), hybrid systems, heat, air conditioning, or power in or on any building or premises in the City of Saint Louis; or for installing, erecting, or altering electrical apparatus for remote controls or systems that are pertinent to public health or safety; or grounding or bonding of any type, including static or cathodic; and all raceways. This shall include, but not be limited to, all circuits or systems such as fire alarms, security devices, card readers, and burglar alarms that interface with or control building systems or circuits which are interrupted or completed by remote means such as AC/DC, radio frequencies of any kind, radio frequency shielding, optical fiber cables and raceways, closed-loop and programmed power distribution, photocells, lasers, or any work or part thereof as specified in this code.

All equipment wiring in a device greater than 24V shall be installed by a licensed electrical contractor.

80.21.1.2 Communications Contractor's License. The Committee of Electrical Examiners shall grant a limited license to allow any person found to be qualified to engage in the business of installing or repairing low voltage limited energy communication equipment,

which shall include the installing or repairing of burglar alarm systems or fire alarm systems. Public address systems, wired music systems, and associated amplifiers from the output shall be permitted to be installed or serviced by holders of a license as a communications contractor. Other work to be permitted to be performed by a communications contractor shall include telephones, telephone outlets, burglar alarm outlets consisting of door contacts, window contacts, local alarm bell or horn, touch pads, card readers, motion detectors, infrared detectors, radio and television equipment, community antenna television and radio distribution systems, provided the system does not exceed 24V nominal.

80.21.1.3 Limited Elevator Electrical Contractor's License. The Committee of Electrical Examiners shall grant a license to allow any person found to be qualified to engage in the business of installation, wiring, alteration, or repair of equipment associated with the following systems: elevators, escalators, moving walks, dumb waiters, and lifts. Such work shall be limited to elevator equipment located in the hoistways, machine rooms, or equipment pits and shall be permitted to be interconnected.

80.21.1.4 Industrial-Maintenance Electrician's License. The Committee of Electrical Examiners shall grant a license to allow any person found to be qualified to engage in the work of installing, erecting, or maintaining electrical wiring, fixtures, apparatus, equipment, devices, or components thereof that are used in or on industrial buildings and premises occupied by the license holder. The license shall be issued in the name of the company for which the industrial electrician does work. This license is limited to that company's premises only. The industrial-maintenance electrician must be a full-time employee of that company.

80.21.2 Application for License. The Committee of Electrical Examiners shall receive, record, and preserve all applications from persons made for a license to engage in any kind of business aforesaid so long as such license is in effect. An applicant for a license must be at least twenty-one years of age, be employed in the electrical industry full time (minimum 40 hours per week) by only one employer, and satisfy one of the following experience conditions:

1. An applicant for license shall furnish written evidence that he or she is a graduate electrical engineer of an accredited college or university and has two years practical electrical experience in the construction industry, or that he or she is a graduate of an electrical trade school and has at last four years of practical experience on electrical work or that he or she has had at least two years of practical experience planning, laying out, supervising, and installing wiring, apparatus, or equipment for electrical light, heat, and power beyond the practical experience requirements for a journeyman's certificate as recognized by the United States Bureau of Labor Standards; or

2. An applicant shall submit written evidence that he or she has had at least six years of previous experience in personally installing, altering, or repairing electric wiring for electric light, heat, or power. In lieu of previous practical experience, credit shall be permitted to be allowed for each year of successful completion of a recognized trade school if the majority of courses taken by the applicant were primarily directed at education in the electrical industry. No credit shall be granted any applicant for experience gained illegally as determined by the Committee of Electrical Examiners. Letters of reference from licensed electrical contractors shall be submitted attesting to the applicant's practical experience and character; or

3. An applicant shall be a graduate of any two year trade school or technical college of recognized standing and in addition shall have had four years of practical experience in an occupation or business governed by the Committee of Electrical Examiners. Letters of reference from licensed electrical contractors shall be submitted attesting to the applicant's practical experience and character.

If a corporation or a business is registered under the Fictitious Name Act, RSMo 7.200 (1969), the applicant must be a full-time employee of that corporation or business. Each application shall bear the name of the individual applicant and be signed by the applicant. The code official shall submit each such application to the Committee of Electrical Examiners and, upon approval, applicant shall pass the prescribed test (recognized for 1 year from the date of testing).

80.21.2.1 Business Requirements. As a license holder in establishing or operating a business, the license holder must:

1. Be a full-time (minimum 40 hours per week) employee of one company only and shall not serve in that capacity at the same time for more than one person, partnership, or corporation;

2. Have and maintain an established street addressed place of business with all necessary occupancy permits;

3. Have and maintain someone in attendance and on premises at same established place of business to receive calls during regular business hours. (Said business hours being defined as Monday through Friday 8.00 a.m.—5.00 p.m. excluding legal holidays);

4. Have and continuously maintain a licensed business answering service during all non-regular business hours.

5. Have all service-type vehicles engaged in the business visibly identified with the name, address, and telephone number of the business (minimum 3 inches tall).

80.21.3 Requirements for Permits. No person shall engage in any work set forth in this code unless and until:

1. They shall have been granted by the Committee of Electrical Examiners a license to engage in the business specified in their application;

2. They shall have made the deposit and furnished the bond hereinafter prescribed and obtained the license hereinbefore prescribed;

3. They shall have all current permit fees paid.

No person shall install or cause to have installed any of the work hereinbefore named unless such work shall be done by a person complying with the provisions of this code.

80.21.4 Bonds/Certificate of Limited Liability Insurance. Prior to acceptance of any application, the applicant for an electrical contractor, limited elevator electrical contractor license, or communications contractor license shall file with the Electrical Inspection Section the following:

80.21.4.1 Bonds Required. The applicant for an electrical contractor or limited elevator electrical contractor license shall file with the Electrical Inspection Section an indemnifying bond with good and sufficient sureties and in the sum of twenty-five thousand dollars. The applicant for a communications contractor license shall file with the Electrical Inspection Section an indemnifying bond with good and sufficient sureties in the sum of twenty- five thousand dollars. Such bonds shall name as insured the City of Saint Louis for the use and benefit of any person with whom such applicant shall thereafter contract to do electrical contracting, communications contracting, limited elevator electrical contracting, or industrial - maintenance electrical work to indemnify any such person for damages sustained on account of the failure of such applicant to perform the work as contracted in accordance with the provisions and requirements hereof relating to the performance of electrical contracting, communications contracting, limited elevator electrical contracting. Such indemnifying bond shall be written by a person, firm, or corporation authorized to do business in the State of Missouri and shall be approved by the Comptroller of the City of Saint Louis prior to the issuance of a license. Any lapse shall require re-application to the Board of Electrical Examiners along with proper fees and be re-tested.

80.21.4.2 Certificate for Limited Liability Insurance Required. The applicant for an electrical contractor, limited elevator electrical contractor license, or communications contractor license shall file with the Electrical Inspection Section a Certificate of Limited Liability in the amount of $1,000,000.00.

80.21.5 Renewal of License. Each holder of a license as set forth in Sections 80.21.1.1 thru 80.21.1.4 shall renew their license annually subject to the fees specified in Table 80.11.8. Electrical or Industrial-Maintenance License holders shall provide proof of continuing education or the equivalent on the changes in the current adopted Electrical Code shall be provided at the time of renewal. A minimum of 0.8 CEUs or 8 classroom hours shall be required.

80.21.5.1 Change of Name. Each holder of a license as set forth in Sections 80.21.1.1 through 80.21.1.4 shall, upon changing the name of their company or corporation, notify the Electrical Inspection Office and are subject to the license renewal fees in Table 80.21.8. Prior to name change the license holder shall have all open permits pass a final inspection and all permit fees shall be paid.

80.21.5.2 Inactive Status. License holders within the City of St. Louis who wish to make their license inactive shall notify the code official in writing as to the effective date. Fee for a license on inactive list will be as set forth in Table 80.21.8. To reactivate a license, the license holder will need to submit documentation to show work experience for the last three years (i.e., W-2s). The license holder will need to provide proof of continuing education in the current adopted Electrical Code. Prior to inactive status, the license holder shall have all open permits pass a final inspection and all permit fees shall be paid.

80.21.6 Revocation of License. The Committee of Electrical Examiners shall be authorized to revoke any

license hereby granted after public hearing pursuant to the notice requirements of this code where the Committee of Electrical Examiners finds any of the following:

1. That the license holder obtained the license by fraud or misrepresentation.

2. That the license holder intentionally violated any of the provisions of this code or any other provision of the codes adopted by the City of Saint Louis.

3. That the license holder is found to be negligent in their work or found to be unfit or incompetent in the work of electrical or communication contracting.

4. That the license holder has been convicted of a crime or of violating an ordinance involving moral turpitude.

5. That the license holder has obtained permits for personnel not licensed by the Committee of Electrical Examiners or in their employ.

6. That the license holder supervising performance of the business has served in that capacity at the same time for more than one person, partnership or corporation, or that the license holder is not a full-time employee (40 hours minimum) of the contracting firm.

7. That the information on licensee's application is simultaneously used as information and proof for any other license in the City of Saint Louis.

8. That the license holder is in arrears on payment of any City of Saint Louis tax levies, electrical permit fees, business license fees, or indemnifying bonds. Notice to the Committee shall be in writing from the appropriate agency.

The Committee of Electrical Examiners shall immediately notify the License Collector and the code official of such revocation in writing. The License Collector shall forthwith revoke the business license of the license holder upon receipt of said notice.

80.21.7 License Collector's Authority. The License Collector is hereby authorized to issue annual business licenses to electrical contractors, communications contractors, limited elevator electrical contractors, and industrial - maintenance electricians upon submission of the license issued by the Committee of Electrical Examiners to engage in their respective electrical field.

80.21.8 Application Fee. The application fee for electrical contractors, industrial - maintenance electricians, communications contractors, and limited elevator electrical contractors shall be charged as specified in Table 80.21.8 on a per exam basis. Such fee is not refundable.

Table 80.21.8

APPLICATION FOR LICENSE FEES

Item	Fee	Duration	Section	Remarks and Requirements
Committee of Electrical Examiners				
Appeal Filing Fee	$150.00		80.20.7	Per Appeal
License				
Electrical Contractor:				
Application Fee	$150.00		80.21.1.1	Charged per application for license
License Renewal	$150.00	1 Year		
Communications Contractor:				
Application Fee	$150.00		80.21.1.2	Charged per application for license
License Renewal	$150.00	1 Year		
Limited Elevator Electrical Contractor:				
Application Fee	$150.00		80.21.1.3	Charged per application for license
License Renewal	$150.00	1 Year		
Industrial-Maintenance Electrician:				
Application Fee	$150.00		80.21.1.4	Charged per application for license
License Renewal	$150.00	1 Year		
License Inactive	$25.00		80.21.5	At the time of license inactive
The license holder is responsible for the payment of all fees for permits and licenses owed by the company, corporation, or partnership for which he holds the license.				

80.21.9 Examination Fee. Examination fees shall be charged by the testing agency on a per exam basis. (Ord. No. 70802, § 3, 7-6-2018.)

25.02.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, and shall, upon conviction thereof, be punished by a fine of not more than $500.00, or by imprisonment not exceeding 90 days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense. (Ord. No. 70802, § 4, 7-6-2018.)

Chapter 25.03

MECHANICAL CODE

Editor's Note:

Ord. No. 70800 repealed and replaced Ordinance No. 68639 and Ordinance No. 68847, adopting the 2018 International Mechanical Code with amendments, including Appendix A. Ord. No. 68639, §§ 1—3, adopted April 21, 2010, repealed ch. 25.03 and enacted a new chapter. The former ch. 25.03, §§ 25.03.010—25.03.730, pertained to similar subject matter and derived from Ord. No. 65021 §§ 2 and 3 (part), 2000; and Ord. No. 65926 § 1, 2003.

Sections:

25.03.010 Adopted.
25.03.020 Amendments.
25.03.030 Penalty.

25.03.010 Adopted.

The 2018 International Mechanical Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Mechanical Code, including Appendix A, is hereby adopted as the Mechanical Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.943, for the governing of the design, installation, construction, and maintenance of mechanical systems by providing reasonable safeguards to protect the public health and safety against the hazards of inadequate, defective, or unsafe mechanical systems and installations as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Mechanical Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.03.020. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 70800, § 2, 7-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.03.020 Amendments.

The 2018 International Mechanical Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add new Chapter 1 to read as follows:

CHAPTER 1

ADMINISTRATION

SECTION 101 GENERAL

101.1 Title. These regulations shall be known as the Mechanical Code of the City of Saint Louis, hereinafter referred to as "this code."

101.2 Scope. This code shall regulate the design, installation, maintenance, alteration, relocation, and inspection of mechanical systems that are installed and utilized to provide control of environmental conditions and related processes within buildings. This code shall also regulate those mechanical systems, system components, equipment, and appliances specifically addressed herein. The installation of fuel gas distribution piping and equipment, fuel gas-fired appliances, and fuel gas-fired appliance venting systems shall be regulated by the Fuel Gas Code.

101.2.1 Appendices. Provisions in the appendices shall not apply unless specifically adopted. Appendix A is hereby adopted for use by the City of Saint Louis.

101.3 Intent. The purpose of this code is to provide minimum standards to safeguard life and limb, health, property, and public welfare by regulating and controlling the design, construction, installation, quality of materials, location, operation, and maintenance or use of mechanical systems. This code shall be construed to secure its expressed intent, which is to insure

public health, safety, and welfare insofar as they are affected by the installation and maintenance of mechanical systems.

101.4 Severability. If a section, subsection, sentence, clause, or phrase of this code is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this code.

SECTION 102 APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where, in a specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

102.2 Existing Installations. Except as otherwise provided for in this chapter, a provision in this code shall not require the removal, alteration, or abandonment of nor prevent the continued utilization and maintenance of a mechanical system lawfully in existence at the time of the adoption of this code.

102.3 Maintenance. Mechanical systems, both existing and new, and parts thereof shall be maintained in proper operating condition in accordance with the original design and in a safe and sanitary condition. Devices or safeguards that are required by this code shall be maintained in compliance with the edition of the code under which they were installed. The owner or the owner's authorized agent shall be responsible for maintenance of mechanical systems. To determine compliance with this provision, the code official shall have the authority to require a mechanical system to be reinspected.

The inspection for maintenance of HVAC systems shall be performed in accordance with ASHRAE/ ACCA/ANSI Standard 180.

102.4 Additions, Alterations, or Repairs. Additions, alterations, renovations, or repairs to a mechanical system shall conform to that required for a new mechanical system without requiring the existing mechanical system to comply with all the requirements of this code. Additions, alterations, or repairs shall not cause an existing mechanical system to become unsafe, hazardous, or overloaded.

Minor additions, alterations, renovations, and repairs to existing mechanical systems shall meet the provisions for new construction unless such work is done in the same manner and arrangement as was in the existing system, is not hazardous, and is approved.

102.5 Change in Occupancy. It shall be unlawful to make a change in the occupancy of any structure which will subject the structure to any special provision of this code applicable to the new occupancy without approval. The code official shall certify that such structure meets the intent of the provisions of law governing building construction for the proposed new occupancy and that such change of occupancy does not result in any hazard to public health, safety, or welfare.

102.6 Historic Buildings. The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation, or moving of building or structures shall not be mandatory for existing buildings or structures identified and classified by United States, the State of Missouri, or the City of Saint Louis as historic buildings when such buildings or structures are judged by the code official to be safe and in the public interest of health, safety, and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation, or moving of buildings.

102.7 Moved Buildings. Except as determined by Section 102.2, mechanical systems that are a part of buildings or structures moved into or within the City of Saint Louis shall comply with the provisions of this code for new installations.

102.8 Referenced Codes and Standards. The codes and standards referenced in this code shall be those that are listed in Chapter 15 and such codes and standards shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.8.1 and 108.2.2 *Exception:* Where enforcement of a code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing and the manufacturer's installation instructions shall apply.

102.8.1 Conflicts. Where conflicts occur between provisions of this code and referenced standards, the provisions of this code shall apply. Referenced standards shall be permitted to be updated by rule making authority of the Building Commissioner.

102.8.2 Provisions in Referenced Codes and Standards. Where the extent of a reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard.

102.9 Requirements Not Covered by This Code. Requirements necessary for the strength, stability, or proper operation of an existing or proposed mechanical system or for the public safety, health, and general welfare not specifically covered by this code shall be determined by the code official.

102.10 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law.

102.11 Application of References. References to chapter section numbers or to provisions not specifically identified by number shall be construed to refer to such chapter, section, or provision of this code.

SECTION 103 SECTION OF MECHANICAL EQUIPMENT INSPECTION

103.1 General. There is hereby created the Section of Mechanical Equipment Inspection within the Division of Building and Inspection which shall have control and enforce all codes, regulations, and ordinances pertaining to mechanical installations and systems in accordance with this code. The head of this Section shall be known as the Mechanical Equipment Inspection Supervisor, who shall be appointed by the Building Commissioner. Throughout this code, the Mechanical Equipment Inspection Supervisor, the Chief Mechanical Engineer, the Building Commissioner, and their authorized employees shall be referred to as the code official.

103.2 Mechanical Equipment Inspection Supervisor. There shall be appointed by the Building Commissioner a Mechanical Equipment Inspection Supervisor. The Supervisor shall have a minimum of five years' experience as a Mechanical Inspector and possess the qualifications established by the Department of Personnel.

103.3 Deputies. There shall be appointed by the code official a sufficient number of Mechanical Equipment Inspectors to adequately perform all inspection duties and enforce all ordinances pertaining to the Mechanical Equipment Inspection Section in accordance with subsequent sections of this code and City of Saint Louis budgetary constraints. All Mechanical Inspectors shall have had at least three years' experience and possess the qualifications set forth by the Department of Personnel.

103.3.1 Assistant to the Supervisor. One such inspector shall assist the Mechanical Equipment Inspection Supervisor. The assistant shall assume the responsibilities of the Mechanical Equipment Inspection Supervisor in the Supervisor's absence or disability.

103.3.2 Restriction of Employees. An official or employee connected with the Mechanical Equipment Inspection Section, except one whose only connection is that of a member of the Board of Stationary Engineers, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building in the City of Saint Louis or the preparation of construction documents thereof unless that person is the owner of the building; nor shall such code official or employee engage in any work that conflicts with official duties or with the interests of the department.

103.4 Liability. The code official and employees charged with the enforcement of this code, while acting for the City of Saint Louis, shall not thereby be rendered liable personally and are hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act required or permitted in the discharge of official duties.

Any suit or criminal complaint instituted against any code official or employee because of an act performed in the lawful discharge of duties and under the provisions of this code shall be defended by the legal representative of the City of Saint Louis until the final termination of the proceedings. The code official or any employees shall not be liable for any cost in or arising from any action, suit, or proceeding that is instituted in pursuance of the provisions of this code. Any code official or employee of the Division of Building and Inspection, Department of Public Safety, acting in good faith and without malice shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

SECTION 104 DUTIES AND POWERS OF THE CODE OFFICIAL

104.1 General. The code official shall enforce all of the provisions of this code and shall act on any question relative to the installation, alteration, repair, maintenance, or operation of all mechanical systems,

devices, and equipment except as otherwise specifically provided for by statutory requirements or as provided for in Sections 104.1.1 through 104.8.

104.1.1 Emergency Condemnation. Whenever the code official shall find any building, structure, premises, or portion thereof no matter for what purpose used to be in an unsafe or dangerous condition and that there is an actual and potential danger to the occupants or those in the proximity of any building, structure, or premises which poses an immediate danger to public safety or welfare, the code official shall order the immediate evacuation of said building, structure, or premises. All of the occupants so notified shall immediately vacate the building, structure, or premises and no person shall re-enter until authorized to do so by the code official.

Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order by the code official except such person(s) directed to perform work to remove a violation or unsafe condition shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone from re-entering the building, structure, or premises until such time that the Police Department shall have been notified by the Building Division that the same is in a safe condition.

Any person who shall violate any provisions of this section shall, upon conviction thereof, be penalized as set forth in Section 25.03.030.

104.1.2 Authority to Placard. The code official has the authority to post a placard in a conspicuous place on a building or premises where the mechanical system has been found to be unsafe or inadequate.

104.1.3 Placarded Building. Placards shall remain on said building until the required repairs, replacements, or improvements have been made and accepted by the code official and it shall be unlawful to deface or willfully remove any such placard that has been posted on a building without first obtaining consent of the code official. It shall be unlawful for any person to reside in, use, rent, lease, or occupy such building for any purpose while so placarded.

104.1.4 Rule Making Authority. The Building Commissioner shall have authority, as necessary in the interest of public health, safety, and general welfare, to adopt and promulgate rules and regulations; to interpret and implement the provisions of this code; to secure the intent thereof; and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code, or of violating accepted engineering practice involving public safety.

104.1.5 Accepted Engineering Practice. In the absence of provisions not specifically contained in this code or approved rules, the regulations, specifications, and standards listed in Chapter 15 shall be deemed to represent accepted engineering practice in respect to the material, equipment, system, or method of construction therein specified.

104.2 Applications and Permits. The code official shall receive applications for and issue permits for the installation, replacement, relocation, and alteration of mechanical systems and equipment; inspect the premises for which such permits have been issued; and enforce compliance with the provisions of this code. Such application shall describe in detail the nature of the work and the location thereof by street and number. No person shall begin such work unless and until they shall have submitted a proper application and received a permit. In the case of an emergency, work may begin upon the condition that such application has been submitted on line at stlcitypermits.com prior to commencement of job.

Exception: Buildings, structures, or premises owned and occupied by the United States of America or the State of Missouri.

104.3 Inspections. The code official shall make all of the required inspections or the code official may accept reports of inspection by authoritative and recognized services or individuals. All reports of such inspections shall be in writing and certified by a responsible officer of such authoritative service or by the responsible individual. The code official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise subject to the approval of the appointing authority.

104.3.1 Dangerous, Hazardous, Unsanitary, or Unapproved Installations. The code official shall have the authority to seal out of service mechanical equipment, devices, and appurtenances covered by the Building and Mechanical Codes when, in the code official's opinion, any of these items are in an unsafe, hazardous, or unsanitary condition, or if the installation was made without obtaining the necessary permit or permits, or if the installation violates the provisions of these codes.

104.3.2 Notice of Sealing Out of Service. Before sealing any device out of service, the code official shall, except in cases of emergency, serve ten calendar days written notice upon the building owner, occupant, or collector of rent either directly or by United States mail stating intention to seal the equipment out of service and the reasons therefor.

104.3.3 Unlawful to Remove Seal. Any device sealed out of service by the code official shall be plainly marked with a sign or tag indicating such sealing and any defacing or removal of the sign or tag, any tampering with or removal of the seal without approval of the code official, or operation of the sealed unit shall constitute a violation of this code. The penalty for violation of this section shall be as set forth in Section 25.03.030.

104.3.4 Utility Disconnect. Whenever the code official determines that there is an imminent danger to public safety, the code official may request that the public utilities be disconnected to that structure or premises.

104.4 Right of Entry. Whenever it is necessary to make an inspection to enforce the provisions of this code or whenever the code official has reasonable cause to believe that there exists in a building or upon any premises any condition or violation of this code which makes the building or premises unsafe, unsanitary, dangerous, or hazardous, the code official shall have the authority to enter the building or premises at all reasonable times to inspect or to perform the duties imposed upon the code official by this code. If such building or premises is occupied, the code official shall present credentials to the occupant and request entry. If such building is unoccupied, the code official shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. If entry is refused, the code official has recourse to every remedy provided by law to secure entry.

When the code official has first obtained a proper inspection warrant or other remedy provided by law to secure entry, an owner, the owner's authorized agent, occupant, or person having charge, care, or control of the building or premises shall not fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the code official for the purpose of inspection and examination pursuant to this code.

104.5 Identification. The code official shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

104.6 Notices and Orders. The code official shall issue all necessary notices or orders to ensure compliance with this code.

104.7 Suspensions and Cancellations. The code official shall have the power and is directed to suspend for a definite time or to cancel any license granted hereunder if, after notice and opportunity to be heard, the party named therein is found guilty by the Board of Examiners of violating rules and regulations established by the Section of Mechanical Equipment Inspection, and do all other acts necessary to carry out these provisions.

104.8 Department Records. The code official shall keep official records of mechanical applications received, permits issued, fees collected, licenses and certificates issued, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for three years except notices and orders which have been complied with need not be kept.

SECTION 105 APPROVAL

105.1 Modifications. Whenever there are practical difficulties involved in carrying out the provisions of this code, the code official shall have the authority to grant modifications for individual cases upon application of the owner or owner's authorized agent, provided the code official shall first find that the special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and does not lessen health, life, and fire safety requirements. The details of action granting modifications shall be recorded and entered in the files of the Mechanical Inspection Section.

105.2 Alternative Materials, Methods, Equipment, and Appliances. The provisions of this code are not intended to prevent the installation of any material or to prohibit any method of construction not specifically prescribed by this code, provided that any such alternative has been approved. An alternative material or method of construction shall be approved where the code official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code and that the material, method, or work offered is, for the purpose intended, not less than the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety. Where the alternative material, design, or method

of construction is not approved, the code official shall respond in writing, stating the reasons the alternative was not approved.

105.2.1 Research Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

105.3 Required Testing. Whenever there is insufficient evidence of compliance with the provisions of this code or evidence that a material or method does not conform to the requirements of this code or in order to substantiate claims for alternative materials or methods, the code official shall have the authority to require tests as evidence of compliance to be made at no expense to the City of Saint Louis.

105.3.1 Test Methods. Test methods shall be as specified in this code or by other recognized and accepted test standards. In the absence of recognized and accepted test methods, the code official shall approve the testing procedures.

105.3.2 Testing Agency. Tests shall be performed by an approved independent agency.

105.3.3 Test Reports. Reports of tests shall be retained by the code official for the period required for retention of public records.

105.4 Approved Materials and Equipment. Materials, equipment, and devices approved by the code official shall be constructed and installed in accordance with such approval.

105.5 Material and Equipment Reuse. Materials, equipment, and devices shall not be reused unless such elements have been reconditioned, tested, and placed in good and proper working condition and approved by the code official.

SECTION 106 PERMITS

106.1 When Required. No person shall commence any mechanical work until a permit for such work has been issued by the code official. The fees for said permits shall be paid to the City of Saint Louis for each permit herein required. All work shall be done by the person or corporation in whose name the permit or permits required by this section are issued or any other qualified person or corporation designated by the permit holder. Any person who shall fail to comply with or who shall violate any of the provisions of this section shall be subject to the penalty provisions of Section 25.03.030.

Exception: When equipment replacements or repairs must be performed in an emergency situation, the permit application shall be submitted on line at stlcitypermits.com prior to commencing the job.

106.2 Permits Not Required. Permits shall not be required for any of the following:

1. Portable heating or cooling appliances.
2. Portable ventilation equipment.
3. Portable cooking unit.
4. The replacement of any minor part that does not alter the approval of equipment or make such equipment unsafe.
5. Portable evaporation cooler.
6. Self-contained refrigeration systems containing 3 pounds (1.36 kg) or less of refrigerant or that are actuated by motors of less than 1 horsepower (0.75 kW).
7. Self-contained refrigeration systems that 3 pounds (1.36 kg) or less of refrigeration or that are actuated by motors of less than 1 horsepower (0.75 kW).
8. Portable fuel cell appliances that are connected to a fixed piping system and are not interconnected to a power grid.

Exemption from the permit requirements of this code shall not be deemed to grant authorization for work to be done in violation of the provisions of this code or other laws or ordinance of the City of Saint Louis.

106.3 Application for Permit. Each application for a permit shall be submitted on line at stlcitypermits.com.

106.4 Permit issuance. The application, construction documents, and other data filed by an applicant for a permit shall be reviewed by the code official. If the code official finds that the proposed work conforms to the requirements of this code and all laws and ordinances applicable thereto and that the fees specified in Section 106.5 have been paid, a permit shall be issued to the applicant. A mechanical permit submitted on line is not approved until the Mechanical Section approves it. A mechanical permit shall not be transferable.

If the application or the construction documents do not conform to the requirements of all pertinent ordinances of the City of Saint Louis, the code official shall reject such application in writing stating the reasons therefor.

106.4.1 Approved Construction Documents. When the code official issues a permit where construction documents are required, such approved construction

documents shall not be changed, modified, or altered without authorization from the design professional and the code official. Work shall be done in accordance with the approved construction documents.

The code official shall have the authority to issue a permit for the installation of part of a mechanical system before the application for the whole system has been submitted or approved provided adequate information and detailed statements have been filed complying with all the pertinent requirements of this code. The holder of such permit shall proceed at their own risk without assurance that the permit for the entire mechanical system will be granted.

Except for unsafe mechanical systems or installations, this code shall not require changes in the construction documents or mechanical work for which a lawful permit has been heretofore issued or otherwise lawfully authorized and the installation of which shall have been actively prosecuted within ninety days after the effective date of this code and is completed with dispatch.

106.4.2 Validity. The issuance of a permit or approval of construction documents shall not be construed to be a permit for or an approval of any violation of any of the provisions of this code or of other ordinances of the City of Saint Louis. A permit presuming to give authority to violate or cancel the provisions of this code shall be invalid.

The issuance of a permit based upon construction documents and other data shall not prevent the code official from thereafter requiring the correction of errors in said construction documents and other data or from preventing building operations from being carried on thereunder when in violation of this code or of other ordinances of the City of Saint Louis.

106.4.3 Expiration. Every permit issued by the code official under the provisions of this code shall expire by limitation and become null and void if the work authorized by such permit is not commenced within 180 days from the date of such permit or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 days. The code official may grant one or more extensions of time for an additional period the total not to exceed six months if there is reasonable cause. Before such work recommences, a new permit shall be first obtained and a new fee paid.

106.4.4 Extensions. A permittee holding an unexpired permit shall have the right to apply for an extension of the time within which the permittee will commence work under that permit when work is unable to be commenced within the time required by this section for good and satisfactory reasons. The code official shall extend the time for action by the permittee if there is reasonable cause.

106.4.5 Suspension or Revocation of Permit. The code official shall have the authority to suspend or revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or on the construction documents upon which the permit or approval was based. A permit shall also be considered for revocation under the following provisions:

1. The owner of the property or the contractor shall request cancellation in writing stating the reasons for the request for cancellation. No refund of fees shall be made.

2. The code official may revoke the permit for fraud, for noncompliance with the code, or for failure to pay the prescribed fees.

Should the mechanical contractor install work that is not in compliance with the Mechanical, Fire, or Building Code, the contractor shall be directed by the code official to make necessary corrections to assure code compliance and no other permits shall be issued to said contractor until such work is corrected and approved by the code official.

106.4.6 Retention of Construction Documents. One set of construction documents shall be retained by the code official until final approval of the work covered therein. One set of construction documents shall be returned to the applicant and said set shall be kept at the site of the building or job at all times during which the work authorized thereby is in progress.

106.4.7 Previous Approvals. This code shall not require changes in the construction documents, construction, or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized and the construction of which has been pursued in good faith within 180 days after the effective date of this code and has not been abandoned.

106.4.8 Posting of Permit. A true copy of the permit shall be kept on the site of operations, open to public inspection during the entire time of prosecution of the work and until the completion of the project.

106.4.9 Business License Requirement. A permit shall not be issued to any person that does not have a current and valid business license from the City of St. Louis.

Exception: An owner-occupant of a single-family dwelling that shows sufficient knowledge for the installation of a mechanical system to the Mechanical Equipment Inspection Section. The homeowner shall be permitted to be granted a "Homeowners Permit." If said system installation requires the handling of refrigerants, the homeowner must also have a certification as a Universal Technician as required by 40 CFR part 82, Subpart F, a federal law.

106.5 Fees. A permit shall not be issued until the fees prescribed in Table 106.5.2 have been paid nor shall an addendum to a permit necessitating an additional fee because of the additional work involved be released until the additional fee has been paid. Fees for the inspections herein prescribed shall be paid to and collected by the City of Saint Louis. A permit may be revoked if payment is returned for insufficient funds.

106.5.1 Work Commencing Before Permit Issuance Surcharge. In case any work for which a permit required by this code is started or preceded with prior to the permit being issued, the total normal fees applicable shall be doubled or $500.00 plus the original permit fee, whichever is greater. The payment of said surcharge shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work nor from other penalties prescribed by law.

106.5.2 Fee Schedule. The fees for mechanical work shall be as indicated in Table 106.5.2. Mechanical permit fees shall not be waived for contractors working in facilities owned and operated by the City of Saint Louis.

Table 106.5.2

FEES FOR MECHANICAL PERMITS

Item	Fee
Application Fee	$25.00
Amusement Rides, each	$10.00
Auto Lifts, each	$80.00
Boilers (except residentia0,each	$100.00
Unfired Pressure Vessels, each	$40.00
Refrigeration/Air Conditioning (chillers, condensing units, self-contained walk-in coolers/freezers), each	
Up to 15 tons	$60.00
15 tons and over	$85.00 + $1.00 per ton
Cooling Towers, each	$200.00
Ventilation Systems, each	$200.00
Air handling units, packaged units, make-up air units, unit heaters, unit ventilators, etc.	
200CFM to 2000CFM	$80.00
2001CFM to 5000CFM	$140.00
5001CFM and over	$180.00
Air Terminal Units	$40.00 1st plus $10.00 each additional
Exhaust Fans, each	
200CFM to 2000CFM	$80.00
2001CFM to 5000CFM	$140.00
5001CFM and over	$180.00
Exhaust Hoods, each	$40.00
Smoke Control Fans, each location	$250.00
Process Piping (waived for Use Group R3)	$20.00 plus $2.00 per horsepower serving the pipe
Residential Fees Use Groups R1, R2, and R3	
Furnaces, each	$40.00
Condensing units, each	$40.00
Combination furnace/condensing unit, each	$40.00
Re-inspection, each (for faulty or incomplete work at time of requested inspection)	$25.00
Failure to request an inspection, each permit.	$50.00
Special inspection, each	$40.00

106.5.3 Fees for abandoned work or revoked permit. Fees shall not be waived or refunded for any mechanical permit that has been abandoned, canceled, or revoked.

SECTION 107 INSPECTIONS AND TESTING

107.1 General. The code official is authorized to conduct such inspections as are deemed necessary to determine compliance with the provisions of this code and to approve reports of inspection by approved agencies or individuals. Construction or work for which a permit is required shall be subject to inspection by the code official, and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the City of Saint Louis. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances shall not be valid.

107.2 Required Inspections and Testing. The code official, upon notification from the permit holder or the permit holder's agent, shall make the following inspections and other such inspections as necessary and shall either release that portion of the construction or shall notify the permit holder or the permit holder's agent of violations that must be corrected. The holder of the permit shall be responsible for the scheduling of such inspections.

1. Underground inspection shall be made after trenches or ditches are excavated and bedded, piping installed, and before backfill is put into place. Where excavated soil contains rocks, broken concrete, frozen chunks and other rubble that would damage or break the piping or cause corrosive action, clean backfill shall be on the job site.

2. Rough-in inspection shall be made after the roof, framing, fireblocking, and bracing are in place and all ducting and other components to be concealed are complete and prior to the installation of wall or ceiling membranes.

3. Final inspection shall be made upon completion of the mechanical system.

Exception: Ground-source heat pump loop systems tested in accordance with Section 1210.10 shall be permitted to be backfilled prior to inspection.

The requirements of this section shall not be considered to prohibit the operation of any heating equipment or appliances installed to replace existing heating equipment or appliances serving an occupied portion of a structure provided that a request for inspection of such heating equipment or appliances has been filed with the department not more than 48 hours after such replacement work is completed and before and portion of such equipment or appliances is concealed by any permanent portion of the structure.

107.2.1 Other Inspections. In addition to the inspections specified in Section 107.2, the code official is authorized to make or require other inspections of any construction to ascertain compliance with the provisions of this code and other laws that are enforced.

107.2.2 Inspection Requests. It shall be the duty of the holder of the permit or their duly authorized agent to notify the code official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this code.

107.2.3 Approval Required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the code official. The code official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed or notify the permit holder or his or her agent wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the code official.

107.2.4 Approved Inspection Agencies. The code official is authorized to accept reports from approved agencies provided that such agencies satisfy the requirements as to qualifications and reliability.

107.2.5 Evaluation and Follow-Up Services. Prior to the approval of a prefabricated construction assembly having concealed mechanical work and issuance of a mechanical permit, the code official shall require the submittal of an evaluation report on each prefabricated assembly indicating the complete details of the mechanical assembly, including a description of the system and its components, the basis upon which the assembly is being evaluated, test results and similar information, and other data as necessary for the code official to determine conformance with this code. Acceptable reports shall be permitted to come from the State of Missouri Public Service Commission or ICC Evaluation Services.

107.2.5.1 Evaluation Service. The code official shall designate the evaluation service of an approved agency as the evaluation agency and review such agency's evaluation report for adequacy and conformance to this code.

107.2.5.2 Follow-Up Inspection. Except where ready access is provided for mechanical systems, service equipment and accessories for complete inspection at the site without disassembly or dismantling, the code official shall conduct the in-plant inspections as frequently as necessary to ensure conformance to the approved evaluation report or shall designate an approved independent inspection agency to conduct such inspections. The inspection agency shall furnish the code official with the follow-up inspection manual and a report of inspections upon request, and the mechanical system shall have an identifying label permanently affixed to the system indicating that factory inspections have been performed.

107.2.5.3 Test and Inspection Records. Required tests and inspection records shall be accessible to the code official at all times during the fabrication of the

mechanical system and the erection of the building; or such records as the code official designates shall be filed.

107.2.6 Coordination of Inspections. Whenever in the enforcement of this code or another code or ordinance the responsibility of more than one code official is involved, it shall be the duty of the code officials involved to coordinate their inspections and administrative orders as fully as practicable. Whenever an inspector observes an apparent or actual violation of some provision of some law, ordinance, or code not within the inspector's authority to enforce, the inspector shall report the findings to the code official having jurisdiction.

107.3 Testing. Mechanical systems shall be tested as required in this code and in accordance with Sections 107.3.1 through 107.3.3. Tests shall be made by the permit holder and observed by the code official.

107.3.1 New, Altered, Extended, or Repaired Systems. New mechanical systems and parts of existing systems which have been altered, extended, renovated, or repaired shall be tested as prescribed herein to disclose leaks and defects.

107.3.2 Apparatus, Material, and Labor for Tests. Apparatus, material, and labor required for testing a mechanical system or part thereof shall be furnished by the permit holder.

107.3.3 Reinspection and Testing. Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as to achieve compliance with this code. The work or installation shall then be resubmitted to the code official for inspection and testing.

107.4 Approval. All equipment subject to an annual inspection shall be identified by a metal tag bearing the City identification number. Stickers shall be applied to said equipment upon annual inspections. Stickers shall also be applied to residential (R-3 occupancy) equipment.

107.4.1 Revocation. The code official is authorized to, in writing, suspend or revoke a notice of approval issued under the provisions of this code whenever the notice is issued in error on the basis of incorrect information supplied or where it is determined that the building, structure, premises, or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

107.5 Temporary Connection. The code official shall have the authority to authorize the temporary connection of a mechanical system to the sources of energy for the purpose of testing mechanical systems or for use under a temporary certificate of occupancy.

107.6 Connection of Service Utilities. A person shall not make connection from a utility, source of energy, fuel, or power to any building or system that is regulated by this code for which a permit is required until authorized by the code official.

107.7 Moved Structures. Before any structure that has been moved within or into the City of Saint Louis is occupied, all mechanical equipment and devices shall be inspected and tested for safe operation and compliance with the requirements of this code.

Exception: Mechanical systems within manufactured units bearing certification of the Missouri Public Service Commission.

107.8 Failure to Comply. In the event that these orders are not followed the code official may prohibit occupancy.

107.9 Legal Compliance. All legal assistance necessary to effect compliance of the mechanical systems with this section shall be supplied to the code official by the City Counselor and other City of St. Louis agencies. The Fire and Police Departments of the City of St. Louis shall, upon request, assist the code official in the enforcement of this code.

SECTION 108 VIOLATIONS

108.1 Unlawful Acts. It shall be unlawful for a person, firm or corporation to erect, construct, alter, repair, remove, demolish, utilize a mechanical system, or cause same to be done in conflict with or in violation of any of the provisions of this code or any decision.

108.2 Notice of Violation. The code official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or person responsible for the erection, installation, alteration, extension, repair, removal, or demolition of mechanical work in violation of the provisions of this code, in violation of a detail statement or the approved construction documents thereunder, or in violation of a permit or certificate issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any

person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the building official.

108.3 Prosecution of Violation. If the notice of violation is not complied within the time stated in the Notice of Violation, but no longer than thirty days, the code official shall request the legal counsel of the City of Saint Louis to institute the appropriate proceedings at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of the unlawful occupancy of the structure in violation of the provisions of this code or of the order or direction made pursuant thereto. The time for compliance maybe extended by the code official upon written request if there are extenuating circumstances.

108.4 Violation Penalties. Any person, partnership, or corporation who shall violate a provision of this code or shall fail to comply with any of the requirements herein or who shall erect, install, alter, or repair mechanical equipment or systems in violation of the approve construction documents or directive of the code official or of a permit or license issued under the provisions of this code shall, upon conviction thereof, be penalized as set forth in Section 25.03.030.

108.5 Stop Work Orders. Upon notice from the code official that mechanical work is being performed contrary to the provision of this code, in a dangerous or unsafe manner, or without permit, such work shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property involved, to the owner's authorized agent, or to the person doing the work. The notice shall state the conditions under which the work is authorized to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work. Any person who shall continue any work on the system after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe conditions, shall be subject to immediate arrest and, upon convicted thereof, shall be penalized as set forth in Section 25.03.030.

108.6 Abatement of Violation. The imposition of the penalties herein prescribed shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction or to restrain, correct, or abate a violation, to prevent illegal occupancy of a building, structure, or premises, or to stop an illegal act, conduct, business, or utilization of the mechanical system on or about any premises.

108.7 Unsafe Mechanical Systems. A mechanical system that is unsafe, constitutes a fire hazard, or is otherwise dangerous to human life as regulated by this code is hereby declared as an unsafe mechanical system. Use of a mechanical system regulated by this code constituting a hazard to health, safety, or welfare by reason of inadequate maintenance, dilapidation, fire hazard, disaster, damage, or abandonment is hereby declared an unsafe use. Such unsafe equipment is hereby declared to be a public nuisance and shall be abated by repair, rehabilitation, demolition, or removal.

108.7.1 Authority to Condemn Mechanical Systems. Whenever the code official determines that any mechanical system or portion thereof regulated by this code has become hazardous to life, health, property, or has become unsanitary, the code official shall order in writing that such system either be removed or restored to a safe condition. A time limit for compliance with such order shall be specified in the written notice. A person shall not use or maintain a defective mechanical system after receiving such notice.

When such mechanical system is to be disconnected, written notice as prescribed in Section 108.2 shall be given. In cases of immediate danger to life or property, such disconnection shall be made immediately without such notice.

108.7.2 Authority to Order Disconnection of Energy Sources. The code official shall have the authority to order disconnection of energy sources supplied to a building, structure, or mechanical system regulated by this code when it is determined that the mechanical system or any portion thereof has become hazardous or unsafe. Written notice of such order to disconnect service and the causes therefor shall be given within twenty-four hours to the owner, the owner's authorized agent, and occupant of such building, structure, or premises provided, however, that in cases of immediate danger to life or property, such disconnection shall be made immediately without such notice. Where energy sources are provided by a public utility, the code official shall immediately notify the serving utility in writing of the issuance of such order to disconnect.

108.7.3 Connection After Order to Disconnect. A person shall not make energy source connections to mechanical systems regulated by this code which have been disconnected or ordered to be disconnected by the

code official or the use of which has been ordered to be discontinued by the code official until the code official authorizes the reconnection and use of such mechanical systems.

Where a mechanical system is maintained in violation of this code and in violation of a notice issued pursuant to the provisions of this section, the code official shall institute appropriate action to prevent, restrain, correct, or abate the violation.

SECTION 109 MEANS OF APPEAL

109.1 Appeals. Any person or entity aggrieved by the decision of the code official or any Board hereunder may appeal said decision to the Board of Building Appeals in the manner prescribed in Section 113.0 of the Building Code. The fee for said appeal is as prescribed in the Building Code.

SECTION 110 TEMPORARY EQUIPMENT, SYSTEMS, AND USES

110.1 General. The code official is authorized to issue a permit for temporary equipment, systems, and uses. Such permits shall be limited as to time of service, but shall not be permitted for more than 180 days. The code official is authorized to grant extension for demonstrated cause.

110.2 Conformance. Temporary equipment, systems, and uses shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation, and sanitary requirements of this code as necessary to ensure the public health, safety, and general welfare.

110.3 Temporary Utilities. The code official is authorized to give permission to temporarily supply utilities before an installation has been fully completed and the final certification of compliance has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat, or power in the code.

110.4 Termination of Approval. The code official is authorized to terminate such permit for temporary equipment, systems, or uses and to order the temporary equipment, systems, or uses to be discontinued.

SECTION 111 BOARD OF STATIONARY ENGINEERS

111.1 General. There is hereby established a Board of Stationary Engineers. The Board shall act in an advisory capacity to the code official in the preparation of rules and regulations regarding installation, use, and operation of boilers, steam generators, and pressure vessels consistent with the provisions of this code.

111.1.1 Composition of Board. The Board of Stationary Engineers shall be composed of three members, one member who shall be the code official or duly authorized representative and two other members who shall be appointed by the Mayor.

The two members appointed by the Mayor shall be engineers licensed by the City of Saint Louis under the provisions of this section as Class I Licensed Stationary Engineers with a minimum of five years' experience in the operation and maintenance of steam engines, steam boilers, or steam turbines. The members of the existing Board of Stationary Engineers shall be replaced only upon the appointment of new members by the Mayor at which time (and thereafter) there shall not be two members of the Board of Stationary Engineers who work for or are representatives of the same company, entity, or international union organization or an affiliate thereof. The Board of Stationary Engineers shall elect its own Chairman.

111.1.2 Duties of the Board. The Board of Stationary Engineers shall give oral examinations to all applicants for Stationary Engineer's licenses, issue Boiler Operator Certificates of Competency or Stationary Engineer's licenses to those who pass their respective tests, suspend or revoke such certificate or license for failure to maintain the standards imposed by this section of the code, and may order the reinspection of any boiler, steam generator, or pressure vessel whenever deemed necessary for public safety.

111.2 Board Sessions. The Board of Stationary Engineers shall provide for regular meetings and the code official shall act as the Secretary to the Board and shall keep the minutes of all proceedings. The Board shall convene for business at least once a month and at such additional times as the Chairman shall designate to conduct the business of the Board. A majority of the members of the Board of Stationary Engineers shall constitute a quorum. The Secretary shall keep a register of the names and addresses of all successful applicants designating those found to be qualified for the various classes provided herein.

111.3 Rules and Regulations. The Board of Stationary Engineers shall have the power to adopt such rules and regulations consistent with this section as it may deem necessary for the application of the provisions of this section. Such rules and regulations shall

become effective upon approval by the majority of the Board, shall be on file in the office of the code official, and shall be available to the public upon request.

111.4 Boiler Operator Certificate of Competency. The operation of boilers or steam generators which are generating saturated steam in a pressure range of fifteen psig minimum to one hundred and fifty psig maximum each of which boilers has not more than one hundred square feet of rated heating surface shall be at all times in the charge of a certified Boiler Operator. Application for a Boiler Operator's Certificate of Competency is to be made to the code official or duly authorized representative. The code official upon finding that the applicant is thoroughly familiar with the operational principles which concern the safety and care of the boiler or steam generator, shall issue to such applicant a Boiler Operator Certificate of Competency. The certificate is issued for work at a single specific location as designated on the application and is not transferable. The fee for the examination shall be as listed in Table 110.9.

111.5 Licensing of Stationary Engineers Required. All Stationary Engineers shall be licensed as to the class as set forth in Sections 111.5.1 through 111.5.4.

111.5.1 Licensing of Operators of Boilers or Steam Generators Less Than 1,500 Square Foot of Heating Surface. Any boiler or steam generator which has not more than 1,500 square feet of rated heating surface and which is rated to generate steam at pressures between 15 psig and 300 psig maximum, or which is rated to generate hot water above 160 psig and 250°F to 300 psig, and associated equipment shall be in the charge of an attending Class II or a Class I licensed Stationary Engineer whenever in operation. Square footage shall be determined by the total input to a single header.

111.5.2 Licensing of Operators of Boilers or Steam Generators in Excess of 1500 Square Feet of Heating Surface. Any boiler or steam generator producing saturated or superheated steam above 212°F in excess of 15 psig having a rated heating surface in excess of 1,500 square feet of hot water or any other liquid as defined in this code, or any boiler or steam generator producing saturated or superheated steam or any high temperature liquid above 212°F in excess of 300 psig regardless of rated heating surface, and any steam engine or steam turbine associated with either of the said boilers or steam generators shall be in the charge of an attending Class I licensed Stationary Engineer whenever in operation. Square footage shall be determined by the total input to a single header.

111.5.3 Licensing of Operators of Ammonia Systems from 50 to 100 Tons. Any ammonia system totaling between 50 tons and 100 tons rated capacity shall be in the charge of an attending Class I or Class II licensed Stationary Engineer where located in any and all buildings and whenever in operation.

111.5.4 Licensing of Operators of Ammonia Systems 100 Tons and Over. Any ammonia system totaling 100 tons or more rated capacity shall be in the charge of an attending Class I licensed Stationary Engineer where located in any and all buildings and whenever in operation.

111.6 Stationary Engineer's License Applications. The application for all classes of licenses shall be filed with the Secretary of the Board on the form prescribed by the Board of Stationary Engineers. Within a reasonable time, the Board shall examine all applicants who meet qualifications under Sections 111.6.1 thru 111.6.3 for the various classes of licenses in order to ascertain whether the applicants possess the knowledge, skill, ability, and competency required for the class of license applied for and for the safe operation of various equipment. The Board shall issue to such applicants a license upon the Board finding that the applicant possesses the necessary qualifications and has successfully passed the required examination for the type of license sought.

111.6.1 Qualifications for Stationary Engineer, Class I. All applicants for a Class I Stationary Engineer's license shall be a citizen of the United States, shall have made application for such citizenship, or shall be authorized to hold employment by the Immigration and Naturalization Service. The applicant shall be at least twenty-one years of age and shall have had at least two years of training under a Class I licensed Stationary Engineer or equivalent training, or shall be registered with the Missouri State Board of Registration for Architects and Professional Engineers as an Engineer or as an Engineer in Training, and shall have been actually employed in the engineering or research division of a power generating plant in an engineering capacity for a minimum of twelve months. The Board may accept twelve months of formal training by a nationally recognized agency in lieu of experience. The applicant shall demonstrate their knowledge, skill, ability, and competency to the Board to operate boilers or steam generators of any size or capacity rating which

are generating saturated or superheated steam at any pressure in excess of fifteen psig, or hot water or any other liquid as defined in this code, and ammonia systems in excess of one hundred tons capacity, and to operate associated power plant components and auxiliaries such as steam turbines, engines, air compressors, ammonia systems, pumps, and feed water heaters, electric generators, and other equipment.

111.6.2 Qualifications for Stationary Engineer, Class II. All applicants for a Class II Stationary Engineer's license shall be a citizen of the United States, shall have made application for such citizenship, or shall be authorized to hold employment by the Immigration and Naturalization Service, and shall be at least nineteen years of age. The applicant shall have had at least one year's experience in the operations of steam boilers or steam generators under the supervision of a Class I or Class II Stationary Engineer or equivalent training, or shall have had one year's experience in maintenance work on steam boilers, steam generators, or steam engines or steam turbines or ammonia systems in excess of fifty tons capacity, or shall be registered with the Missouri State Board of Registration for Architects and Professional Engineers as an Engineer or as an Engineer in Training. The Board may accept twelve months of formal training by a nationally recognized agency in lieu of experience. The applicant shall demonstrate their knowledge, skill, ability, and competency to the Board to operate boilers or steam generators which have not more than 1,500 square feet of rated heating surface and which are generating saturated or superheated steam in a pressure range of 15 psig minimum to 300 psig maximum, or hot water or any other liquid as defined in this code, and to operate associated compressors, ammonia compressors, pumps, and feed water heaters, electric generators, and other equipment.

111.6.3 Qualifications for Stationary Engineer, Class II Restricted. The Board of Stationary Engineers shall be permitted to license applicants for a Stationary Engineer's license as Class II Restricted Stationary Engineers upon finding that the applicant is thoroughly familiar with the operating principals which concern the safety and care of the boiler or steam generator. The Class II Restricted Stationary Engineer's license is issued for work at a specific location as designated on the application and is not transferable.

111.7 Examination (All Classes) for Stationary Engineers. The examination for a Class II Stationary Engineer's license shall be oral. The examination for Class I Stationary Engineer's license shall be both oral and written, provided that the applicant shall attain a predetermined percentage as set by the Board of Stationary Engineers in the written examination before the applicant becomes eligible for the oral examination. The written examination must be completed within six months from the date of application. If the applicant does not pass either the oral or written examination the applicant shall wait ninety days before filing a new application. The written examination required by this Section 111 shall be given and administered by independent, third-party testing agencies approved by the Board of Stationary Engineers.

111.8 Temporary Operation by Unlicensed Persons. In cases of emergency and with the approval of the code official, an owner or steam user may appoint a trustworthy experienced person familiar with the operation of the plant as a temporary operator in plants where licensed operators are required by this code.

111.8.1 Permit to Operate. Before a designated person can operate the plant, the code official or duly appointed representative shall be notified. An inspection of the plant shall be made to determine the fitness of the appointed operator. If such person is found to be fit, a permit shall be issued by the code official for such person to operate the plant on a temporary basis; such permit shall be issued for no longer than thirty days. After issuance of the permit, inspection of the plant thereafter shall be on a daily basis as long as the operator remains in the temporary classification. An inspection fee shall be charged per inspection to the owner or steam user payable upon receipt of bill; total cost to be determined at the conclusion of the daily inspections. See Table 111.9 for fee schedule.

111.8.2 Application for License. Within three working days after permission is granted, the designated operator shall make application to the Board of Stationary Engineers for examination for the class license required for the plant. Application and examination shall be in accordance with the provisions of Section 111.6. In the case of a Class I examination the applicant shall complete the written portion of the examination within fourteen days. Both written and oral parts of the examination shall be completed so that the applicant's qualifications for licensing shall be determined within the thirty-day period of emergency operation. If the Board of Stationary Engineers determines that the applicant has failed the examination, the applicant's

permit to operate on a temporary basis shall be revoked immediately and such person shall not be eligible for reappointment as a temporary operator until the examination has been passed.

111.9 Licenses and Fees. At the time of the filing of the application, each applicant for a Boiler Operator Certificate of Competency or Stationary Engineer's license shall pay to the Secretary of the Board of Stationary Engineers a filing fee as set forth in Table 111.9 to cover the cost of the examination given under the provisions of this section, provided further that under no conditions shall said sum or any part thereof be refunded if the applicant fails to pass the examination or if the applicant fails to complete the written examination within the prescribed time limit as set by the Board of Stationary Engineers. All monies received by the Secretary shall be paid to the City Treasurer. All applicants passing the examination for a Class I or Class II Stationary Engineer's license shall be presented upon the passage of such examination with a Stationary Engineer's license for the class for which they have been licensed. All licenses shall be issued for a period of one year from the date of issuance and shall be renewed each year. The fee for licenses renewal shall be as specified in Table 111.9.

Table 111.9

LICENSE FEES—BOARD OF STATIONARY ENGINEERS

Item	Fee	Duration	Remarks and Requirements
STATIONARY ENGINEER'S LICENSE			
Examination & Application Fee			
Class I	$25.00	1 year	
Class II	$25.00	1 year	
Renewal Fee			
Class I	$25.00	1 year	
Class II	$25.00	1 year	
BOILER OPERATOR'S CERTIFICATE OF COMPETENCY			
Examination Fee	$15.00		Includes initial certification
Renewal	$15.00	1 year	Issued for one year from date
TEMPORARY BOILER PLANT OPERATOR			
Permit - per day	$100.00		Issued for up to 30 days

111.9.1 License to Be Displayed. At all times when boilers, steam generators, or associated equipment are in use and are operating, there shall be in charge and attendance a licensed Stationary Engineer of the class designated in Sections 111.5.1 thru 111.5.4. The license shall be displayed in some prominent place where the boilers, steam generators, and associated equipment are in use and any licensed Stationary Engineer shall be negligent in the performance of their duties should they fail to display the license or have an invalid license on display while in attendance of boilers, steam generators, and associated equipment in their charge and in operation.

111.9.2 Renewal. Boiler Operator Certificates of Competency and Stationary Engineer's licenses shall be renewed annually by the Board of Stationary Engineers upon the timely payment of an annual renewal fee, which payment shall be made not later than 30 days after the expiration date of said license. In the event payment of the required renewal fee is not made within 30 days after the applicable expiration date of the license, then the license shall be deemed expired and the licensed holder shall not be permitted to perform work requiring a valid license under this code until the license is reinstated. Licenses that expire because of nonpayment of the required renewal fee shall be reinstated automatically upon payment of the fee provided the fee is paid within 120 days of the expiration of the license. Thereafter, expired licenses can be reinstated by the Board of Stationary Engineers for good cause, absent which the license holder must re-apply for and satisfy the standards for issuance of a new license. The Board of Stationary Engineers shall have the power to revoke such certificate or license for cause.

111.9.3 Notice of Change of Employment. Every Stationary Engineer or Boiler Operator regulated under the provisions of this section is required to notify

the Secretary of the Board of Stationary Engineers within forty-eight hours thereafter when they accept or leave employment as a Stationary Engineer or Boiler Operator and to submit the name of their new employer.

111.10 Penalty. Any owner or steam user of a boiler, steam generator, or associated equipment who shall neglect or refuse to employ a licensed Stationary Engineer of the class designated in Section 110.5, or who allows any unlicensed person to be in charge and attendance of boilers, steam generator, or associated equipment requiring a licensed Stationary Engineer, except as provided for in Section 111.8, shall, upon conviction thereof, be penalized as set forth in Section 25.03.030.

111.10.1 Penalty for Violation by Operators. Any licensed Class II Stationary Engineer or certified Boiler Operator who shall be in charge of and attending the operation of a boiler, steam generator, or associated equipment in excess of the legal size and capacity shall, upon conviction thereof, be penalized as set forth in Section 25.03.030. In addition to such fine, the license of such Stationary Engineer or the Certificate of Competency of the Boiler Operator shall be suspended for a period not to exceed ninety days or revoked as determined by the Board of Stationary Engineers.

111.10.2 Suspension of License. The Board of Stationary Engineers shall order the suspension for not exceeding ninety days or revocation of a Stationary Engineer license or Boiler Operator Certificate of Competency of any person regulated under the provisions of this section where the Board, after a public hearing, finds that the licensee is addicted to drugs or alcohol, or was under the undue influence of drugs or alcohol while in attendance and performing their duties as a licensed Stationary Engineer or certified Boiler Operator, or has been negligent in the performance of their duties while in attendance of the equipment for which they are licensed so as to endanger the lives and property of persons in the immediate area of such equipment; provided further that such person shall be given a ten day notice of the time and place of such hearing. Such person may be represented by counsel at such hearing before such Board. The Board of Stationary Engineers, at their discretion, may order a new examination for applicants for reinstatement of a license or certificate suspended or revoked under the provisions of this section.

The Board of Stationary Engineers shall also order the suspension, for a period not to exceed thirty days, of the Stationary Engineer's license or Boiler Operator Certificate of Competency of any person licensed under the provisions of this section where the Board, after a public hearing, shall find that the licensee has failed to comply with the provisions of this section. Such person shall be given a ten-day notice of such hearing and may be represented by counsel at such hearing.

111.11 Failure to Comply. Any owner or steam user who fails to comply with the above provisions of this code shall be in violation of this code and the code official shall and is hereby directed to consider the plant unsafe and officially seal the plant out of service.

SECTION 112 LICENSING OF MECHANICAL CONTRACTORS, SHEET METAL CONTRACTORS, AND HVAC SERVICER-INSTALLER CONTRACTORS

112.1 License Required. Except as otherwise provided in this section, no individual or business entity shall engage in or perform HVAC servicer-installer work, process piping system work, or HVAC duct system work unless licensed under this section to perform such work. In addition, no person shall hold herself/himself out as being available to perform any work that requires a license under this section unless she/he shall be licensed as aforesaid, and no partnership, corporation, or other legal entity or person conducting business under a fictitious name shall hold out such entity as being available to perform any work that requires a license under this section in any advertising medium or publication unless a principal or employee of such entity shall be licensed as aforesaid. No person having obtained any license under this section shall allow his/her name or license to be used by another person either for the purpose of obtaining permits, doing business, or performing work that requires a license under this section.

112.2 Board of Examiners for Mechanical Licensing. There is hereby established a Board of Examiners for Mechanical Licensing (hereinafter referred to as "the Board") which shall govern contractors, journeymen, and apprentices who perform work under this section.

112.3 Composition of Board. The Board shall be composed as follows: The Mayor shall appoint: (a) one employing contractor who performs HVAC system work, HVAC piping system work, process piping system work, or HVAC servicer-installer work within the City of St. Louis, (b) one registered professional engineer, (c) two

journeymen as that term is defined herein, and (d) one user of a mechanical system subject to this code which user shall be either an owner, lessee, or keeper of any commercial structure with a mechanical system or the agent of such a person. Each of the above shall be a United States Citizen.

The members of the Board shall replace the Board of Examiners of Mechanical Contractors currently in existence within the City of St. Louis pursuant to Section 25.10.030 of the Revised Code of the City of Saint Louis. This replacement shall take place gradually over time as follows and during the period of transition, the current Board of Examiners of Mechanical Contractors shall serve and act as the Board of Examiners for Mechanical Licensing in accordance with the provisions of this section. The "contractor" member of the Board (pursuant to Subsection (a) above) shall be appointed upon the determination of the Mayor to replace the "mechanical contractor" now serving on the Board of Examiners for Mechanical Contractors. The "registered professional engineer" member of the Board (pursuant to Subsection (b) above) shall be appointed upon the determination of the Mayor to replace the "registered professional engineer" now serving on the Board of Examiners for Mechanical Contractors. The two "journeymen" members of the Board (pursuant to Subsection (c) above) shall be appointed upon the determination of the Mayor to replace the respective two "journeyman pipefitters" now serving on the Board of Examiners for Mechanical Contractors. The "User" member of the Board (pursuant to Subsection (d) above) shall be appointed upon the determination of the Mayor to replace the "User" member now serving on the Board of Examiners for Mechanical Contractors.

Upon the re-constitution of the Board pursuant to this section as set forth above and continuing thereafter: (i) there shall not be two members of the Board who work for or are representatives of the same company, entity, or international union organization or an affiliate thereof and the two journeymen members of the Board shall be from different trades and (ii) no member appointed to the Board may serve more than two consecutive terms. The Board shall elect one of its members to serve as Chair and another to serve as Vice-Chair.

112.4 Secretary of the Board, Duties. The duties of the Secretary of the Board of Examiners shall be as stated with respect to similar Boards. The Secretary of the Board shall be nonvoting. The Secretary shall record all meeting notices, shall keep full and complete minutes of all acts and proceedings of said Board, and shall provide all applicants for a license under this section with proper application forms. The Secretary shall maintain and secure all examinations, examination documents, and materials as directed by the Board; review all applications for licenses to determine their completeness within fifteen days of their filing; keep a file of the name and address of every person or firm licensed by the Board and the name and address of every person or firm whose application for a license has been denied; and return all incomplete applications to applicants within fifteen days of determination of incompleteness, specifying the respects in which the application is incomplete. The Secretary shall file with the City Clerk a copy of all rules and regulations adopted by the Board and make such rules and regulations available to all license holders and current applicants.

112.5 Term of Office, Compensation. The members of the Board shall hold office for a term of four years or until their successors are duly appointed and qualified by the Mayor.

112.6 Powers and Duties of the Board of Examiners. It shall be the duty of the Board to meet once every month and more often if the Board deems necessary for the performance of its duties and to hear and determine any charges or complaints made against licensed contractors or journeymen; approve or disapprove all license applications; and transact any other lawful business of the Board.

1. At every Board meeting, the Board shall consider and take action to grant or reject all open and properly completed license applications that have been filed at least fifteen days prior to the Board meeting. For any application that is rejected, the Secretary shall notify the applicant in writing of the reasons for rejection within five days after the Board's action. Notice of the date, time, and place of each Board meeting together with an agenda of the meeting shall be made publicly available at least seven days prior to the Board meeting.

2. Subject to the provisions of Section 109.1 above, the Board shall have the power to suspend and revoke any license issued pursuant to this section for violation of the provisions of this code. All complaints by citizens concerning mechanical installation procedures or rules shall be made to the Board in writing. After a thorough investigation, the Board shall respond to the

complaint in writing. The Chair or acting Chair, with the approval of the Board, shall have power to administer oaths, subpoena witnesses, and compel the production of books, papers, and tangible things and the inspection of premises pertinent to any investigation or hearing authorized by this section.

3. The Board shall request from the code official to adopt policy memo changes in accordance with Section 104.1.4 of this chapter.

4. All applicant records which disclose the applicant's income or a portion thereof shall be returned by the Board to the applicant upon completion of the licensing process. Applicant records which disclose the names of past or present customers of the applicant or his employer shall be retained only for the purpose of use in possible litigation and license revocation hearings and shall not be deemed public records, and no such information shall be available for public inspection.

5. All records, except those to be returned by the Board pursuant to Subsection 4 above or those that the Board is authorized to close to the general public under the provisions of RSMo Ch. 610, shall be open to public inspection and copying during normal working hours, unless otherwise provided by law. Fees for search and duplication of public records shall not exceed the actual cost of document search and duplication. Any documents maybe furnished without charge or at a reduced charge when the code official determines that waiver or reduction of the fee is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of the Board and is not primarily in the commercial interest of the requester. Each request for access to a public record shall be acted upon as soon as possible, but in no event later than the end of the third business day following the date the request is received by the code official. If access to the public record is not granted immediately, the code official shall give a determined explanation of the cause for further delay and the place and earliest time and date that the record will be available for inspection. This period for document production may exceed three days for reasonable cause.

6. The Board shall order the inspection of any mechanical system whenever deemed necessary for the public's safety.

7. The Board shall consider and approve any apprentice training program provided that any such apprentice training program requires a minimum of 7,500 hours of combined on-the-job and classroom training, if it provides an equivalent training program to those certified by the Bureau of Apprenticeship and Training of the U.S. Department of Labor "BAT" (now known as the Office of Apprenticeship Training, Employer and Labor Services ("ATELS")) or to those approved, accredited or certified, as applicable, by any of the other organizations listed in Subsection 112.7.1 below. In addition, the Board shall consider and approve any educational or training program or class covering any work that requires a license under this section, if such program or class is equivalent to one that is offered by a school or organization that is approved, accredited, or certified, as applicable, by one of the organizations listed in Subsection 112.7.1 below.

8. The Board shall approve and designate those independent, third-party agencies authorized to give and administer examinations for licensure pursuant to this code. The written examination required by this Section 112 shall be given and administered by independent, third-party testing agencies approved by the Board.

112.7 Contractor, Journeyman, and Apprentice License Issuance. The Board shall instruct the Mechanical Equipment Inspection Section to issue a license as a contractor, journeyman, or apprentice, as applicable (and within the categories of mechanical contractor, sheet metal contractor, HVAC servicer-installer contractor, pipefitter journeyman, sheet metal journeyman, HVAC service-installer journeyman, pipefitter apprentice, sheet metal apprentice, or HVAC servicer-installer apprentice, as applicable), upon payment of the required license fees to any person or entity who satisfies the following criteria for issuance of the applicable license.

112.7.1 Apprenticeship License. Applicants shall be issued an apprenticeship license promptly upon submission to the Board of a complete application together with:

1. Proof of enrollment in:

A. An applicable apprenticeship program certified by the Bureau of Apprenticeship and Training of the United States Department of Labor (BAT/ATELS); or

B. A Board approved equivalent apprenticeship program that includes classroom/laboratory training by Ranken Technical College, Vatterott Educational

Center, Jefferson College, Southwest Illinois College, or by any other school or organization approved, accredited, or certified, as applicable, by:

I. The Higher Learning Commission, a Commission of the North Central Association of Colleges and Schools;

II. The Accrediting Commission of Career Schools and Colleges of Technology; or

III. The National Center for Construction Education and Research; or

C. An applicable, integrated 7,500 hour combined classroom and field training apprenticeship program that is conducted by any school or organization approved, accredited, or certified, as applicable, by:

I. The Higher Learning Commission, a Commission of the North Central Association of Colleges and Schools; or

II. The Accrediting Commission of Career Schools and Colleges of Technology; or

III. The National Center for Construction Education and Research;

Note: As used in this section an HVAC Servicer-Installer Apprenticeship Program includes, but is not limited to:

1. Any program certified by BAT/ATELS as a Mechanical Servicer-Installer Apprenticeship Program; or

2. Presentation by the applicant or any entity or organization of a written, individual training program providing a total of 7,500 combined hours of educational training or classes and field work or on-the-job training obtained as follows:

A. At least 540 classroom hours of educational training or classes covering work that requires a license under this section (or certain exempt work as allowed by the Note to this subsection below) that is conducted by any combination of schools or other organizations approved, accredited, or certified as applicable by:

I. The Higher Education Commission, a commission of the North Central Association of Colleges and Schools; or

II. The Accrediting Commission of Career Schools and Colleges of Technology; or

III. The National Center for Construction Education and Research; or

IV. The Board pursuant to Subsection 112.6.7 above; and

B. The balance of the required hours needed to equal 7,500 through field work or on-the-job training under the supervision and inspection of a journeyman licensed under this section to perform the work involved.

Note: Within the total 540 classroom hours presented as part of any individualized training program pursuant to this subsection above, the individual program must contain a minimum of 480 hours technical instruction in the installation, alteration, reconstruction, repair, replacement, or servicing of HVAC systems, HVAC duct systems, HVAC piping systems, or process piping systems, as applicable, based on the apprentice license sought by the applicant and within these 480 hours:

1. No more than 75 hours may be introductory level courses; and

2. With respect to individuals seeking a pipefitter or sheet metal license, no more than 75 hours may relate to technical training on work that is exempt from licensure under this code. All technical training on work that is exempt from licensure under this code shall be counted, without limitation, to the full extent required by Subsection 112.7.2 below. Individuals seeking an HVAC servicer installer license shall have no limitation on the number of course hours that relates to work that is exempt from licensure under this code.

112.7.1.1. Upon determination by the Board that the applicant has satisfied the requirements of this subsection, the Mechanical Equipment Inspection Section shall issue an apprenticeship license to the applicant with "Pipefitting Apprentice, Sheet Metal Apprentice or HVAC Service-Installer Apprentice" plainly marked on it (which determination shall be based on the nature of the program or class in which the applicant has enrolled or has completed), and the apprentice's name and date of issue.

112.7.2 Journeyman License. Applicants shall be issued a journeyman license promptly upon submission of a complete application to the Board together with:

1. Proof of:

A. A total of 7,500 hours of training or experience obtained through:

I. The successful completion of a Pipefitter, sheet metal, or HVAC Servicer-Installer apprenticeship program conducted by any school or organization approved, accredited, or certified, as applicable, as required by Section 112; or

II. Completion of at least 540 hours of educational or training classes, plus 6,960 hours of field work or on-the-job training under the supervision and inspec-

tion of a journeyman licensed under this code to perform the work involved, pursuant to an individual training program as allowed by Section 112; or

B. 7,500 hours of:

I. HVAC servicer-installer work, which may include all work on HVAC systems that are exempt from license for an HVAC servicer-installer journeyman license,

II. Process piping system work for a pipefitter journeyman license; or

III. HVAC duct system work for a sheet metal journeyman license.

Notes:

a. In determining whether an applicant has acquired sufficient experience to qualify for a Pipefitter, Sheet Metal, or HVAC Servicer-installer journeyman's license, the Board shall include all of the applicant's experience, as applicable, based on the type of journeyman license sought by the applicant, obtained while installing, constructing, altering, repairing, replacing, or servicing process piping systems, HVAC duct systems, HVAC piping systems, or HVAC systems, as applicable, except for work that is exempt from licensure under this code. All work that is exempt from licensure under this code shall be counted without limitation, provided the work is of a similar nature and technical requirements as work that requires a license under this section. All experience shall be considered by the Board regardless whether the work was performed in the City of Saint Louis or elsewhere.

b. For the purposes of determining whether an applicant for a journeyman license has completed 540 or more hours of educational or training classes pursuant to an individual training program as described in this subsection, the following shall apply: for each class successfully completed by the applicant, pursuant to the grading system used by the school or organization conducting the class, the applicant shall receive the total number of hours indicated by the school or organization as applying to the work for which the applicant seeks a license (a syllabus, a transcript or grade sheet, or a letter from any dean or equivalent administrator at the school or organization will satisfy this requirement).

112.7.2.1. Upon determination by the Board that the applicant has satisfied the above requirements and falls within one of the exceptions set forth in this Section 112, the Secretary shall issue the journeyman license. Upon determination by the Board that the applicant has satisfied the above requirements and does not fall within one of the exceptions set forth in this Section 112, the Secretary shall give the applicant a written notice of the date and place of the examination. The cost of the examination(s) shall be paid by the applicant. If the applicant fails to pass the examination, the applicant shall not be permitted to re-take the examination for a period of three months. If the applicant fails to pass the examination a second time, the applicant shall not be permitted to re-take the examination for a period of one year and the applicant shall resubmit a new application and a new application fee. If the applicant passes the examination, a journeyman license shall be issued.

112.7.2.2. Effective 60 days after approval of this chapter by the Mayor, all licensed journeyman seeking renewal shall furnish proof of twelve professional education units (24 hours) received within the last three years on the then-current Mechanical Code or accepted practices in the performance of work covered by the then-current Mechanical Code or equivalent proof of maintaining and improving journeyman work skills as determined and approved by the Board. Said proof shall be provided at the time of renewal. There may be a carryover of four professional education units (8 hours) in excess of the required hours to the next license cycle. Satisfactory completion of the professional education units administered pursuant to the St. Louis County Mechanical Code shall constitute satisfactory completion under this section.

112.7.2.3. There shall be no limitation as to the type or number of journeyman licenses that can be obtained by an individual.

112.7.2.4. Notwithstanding any language of this section to the contrary, any person who possesses a current valid journeyman license issued by the City of Saint Louis shall not be required to acquire any additional experience or training prior to being allowed to take the examination for any other journeyman's license provided for under this section. Upon submission to the Board of a completed application by a person licensed under this section as journeyman (which application shall not require any proof of the applicant's experience or training) and a $45.00 registration fee, such person shall be permitted to take the examination for an additional journeyman's license and, upon passage of such examination, shall promptly be issued a journeyman's license in the trade covered by the examination so passed.

112.7.3 Mechanical Contractor, Sheet Metal Contractor, Contractor License. Any entity which has in its employ one or more individuals having any of the following qualifications may submit an application for a contractor's license:

1. A minimum of three years verifiable training or experience directing and supervising at least one journeyman; or

2. A degree in civil or mechanical engineering from an accredited college and a minimum of one year verifiable training or experience directing and supervising at least one journeyman; or

3. A license for at least three years under the Plumbing Code or Saint Louis County as a master plumber or master pipefitter and a minimum of one year verifiable training or experience directing and supervising at least one journeyman.

Exception: An HVAC servicer-installer journeyman who is the sole proprietor of a company which employs no other journeyman labor that is required to be licensed by the provisions of this section may obtain a HVAC servicer-installer contractor's license without employing an individual experienced in directing and supervising journeyman.

The application shall be accompanied by proof of the qualifications of the individual or individuals with the foregoing training or experience and proof of the journeyman's license.

The Secretary will present the complete contractor's application to the Board for action in accordance with the provisions of this section above. Upon determination that the applicant has satisfied the requirements of this section, a license shall be issued.

The contractor's license shall be valid for three years form the date of issue. The Secretary of the Board shall send a notice of renewal to the last known address of the contractor and a thirty day grace period after the expiration shall be given in which renewal shall be given without re-qualification. Failure of the Secretary to provide renewal notice shall not excuse the licensee from filing for the renewal license prior to the expiration of the grace period.

The contractor shall notify the Mechanical Equipment Inspection Section within ten days of it no longer employing a supervisor who possesses the qualifications set forth herein.

There shall be no limitation as to the type or number of contractor's licenses that an individual or entity can obtain so long as the applicant satisfies the requirements for each license.

112.7.4 Examination and Re-Examination. Except as set forth in this section below, all individuals desiring to be licensed as a journeyman under this section must successfully pass an examination in order to qualify as same.

Exception: In determining whether a person qualifies to obtain a license without an examination under the foregoing exceptions, the Board shall consider all of an applicant's sheet metal experience, pipefitting experience, or HVAC system work experience obtained while installing, constructing, altering, repairing, replacing, or servicing HVAC systems during the most recent 12 years, except for work that is exempt from licensure under this code. All work that is exempt from licensure under this code shall be counted without limitation provided the work is of similar nature and technical requirements as work that requires a license under this section.

Note: In determining the extent to which the work experience of an applicant for a journeyman license is exempt or non-exempt under the exceptions to testing, the Board shall only consider the extent to which the nature of the work itself is exempt or non-exempt work regardless of whether such work was performed while an employee of a contractor, owner, lessee, or other entity.

112.7.5 Temporary Project Licenses. A temporary license shall be issued to a journeyman for up to six months upon submittal to the Secretary of the Board of the name and location of the project and the name of the licensed mechanical contractor, sheet metal contractor, or HVAC servicer-installer contractor for such project provided the Board first finds that issuance of said temporary license will not compromise the public safety of residents of the City of Saint Louis. The temporary license may be renewed upon application and proof of employment by a licensed contractor.

112.7.6 Reciprocity. The Mechanical Equipment Inspection Section shall issue a license as a contractor, journeyman, or apprentice, as applicable (and within the categories of mechanical contractor, sheet metal contractor, HVAC servicer-installer contractor, pipefitter journeyman, sheet metal journeyman, HVAC servicer-installer journeyman, pipefitter apprentice, sheet metal apprentice, or HVAC servicer-installer apprentice, as applicable), upon payment of the required license fees (without any further action and without the requirement of a Board meeting) to any person or entity who can show proof of a current and valid

license issued by Saint Louis County pursuant to Saint Louis County, Missouri Ordinance 22,313, provided that the reciprocal issuance of such licenses shall cease if and when the criteria for issuance of a license under St. Louis County Ordinance 22.313 are changed such that such criteria are less stringent than those established in this section.

Exception: Any contractor that does not have a City licensed journeyman in their employment shall not be issued a contractor license under reciprocity.

112.8 License Applications and Fees. Each request for a license under this code shall be on an application form provided by the Mechanical Section. The license fees for each license category shall be as set out in Table 112.8. Licenses shall be valid for the duration set forth below, or in the case of an initial license issued to a person or entity holding a St. Louis County license, for the then unexpired term of the St. Louis County license. The fee for any such initial license shall not be prorated. Thereafter, licenses shall be renewed prior to the expiration period noted below. In the event payment of the required renewal fee is not made within 30 days after the application expiration date of the license, then the license shall be deemed expired and the license holder shall not be permitted to perform work requiring a valid license under this code until the license is reinstated. Licenses that expire because of non-payment of the required renewal fee shall be reinstated automatically upon payment of the fee provided the fee is paid within 120 days of the expiration of the license.

Thereafter, expired licenses can be reinstated by the Board for good cause, absent which the license holder must re-apply for and satisfy the standards for issuance of a new license. There shall be a notice of renewal sent to last known address of the contractor or journeyman.

Table 112.8

MECHANICAL LICENSE FEES

Item	Fee
Contractor license	$100.00 for a 3-year license
Journeyman license	$45.00 for a 3-year license
Apprentice license	$10.00

112.9 Manufacturer and Manufacturer's Representative Restricted License. A restricted license shall be issued under this section to any manufacturer or manufacturer's representative and their employees engaged in the supply of equipment and appliances covered by this section or in the supply of parts or the performance of service work, repairs, maintenance, start-up, testing, or tuning of such equipment and appliances. Such license shall be issued by the Board upon submission by the applicant of evidence that the applicant is a manufacturer of, or has a representative relationship with one or more manufacturers of, equipment or appliances covered by this section and payment of a $45.00 license fee.

Upon such submission, the Secretary shall issue a license in the name of the applicant, identifying the equipment or appliance manufacturers with respect to which the license is issued. Such license shall authorize the licensee and its employees to supply parts and perform service work, repairs, maintenance, start up, testing, or tuning of any equipment or appliances which are supplied by the manufacturers listed on the license. There shall be no restriction on the number of such licenses that are issued to anyone person or entity. Each such license shall be valid for as long as the licensee remains a manufacturer or a manufacturer's representative of the equipment or appliance manufacturers listed in the license. Notwithstanding the foregoing, however, no license shall be required for any manufacturer, manufacturer's representative, or their employees to perform work exempted from the requirement for a license pursuant to Section 112.13 below or to perform emergency repair work on any equipment or appliance supplied or represented by the manufacturer or manufacturer's representative.

112.10 Holder of Certificate of Authority from ASME or National Board of Boiler and Pressure Vessel Inspectors. Any entity which holds appropriate ASME Certificate of Authority with extension to field work or an "R" Certificate of Authority issued by the National Board of Boiler and Pressure Vessel Inspectors shall be authorized to engage in the repair and alteration of boilers, steam generators, and pressure vessels which are covered by this code. Any such entity holding such Certificate of Authority shall be authorized to perform the aforesaid work and shall be issued a license hereunder as a contractor, provided that such entity shall pay a registration fee of $45.00 and file with the Secretary of the Board a copy of its Certificate or Certificates of Authority and proof of insurance as specified in Section 112.11.

112.11 Certificate of Insurance. Contractors shall submit a copy of a Certificate of Insurance for combined $1,000,000.00 minimum limits liability insurance

for bodily injury and property damage to the Mechanical Section on or before January 15th of each year. The certificate shall state the insurance company's name, address, telephone number, kind of insurance, coverage, and policy number. Permits will not be issued to contractors who fail to file a Certificate of Insurance with the Mechanical Section annually or whose insurance has lapsed.

112.12 License Exemptions. The following work shall not require a license under this section:

1. Work performed on an owner's own facility by personnel directly in the employment of the owner of the facility or a business affiliate of such owner. For purposes of this exemption, a "business affiliate" shall mean any parent, subsidiary, or sister corporation of the owner and any other corporation, partnership, limited liability company, or joint venture in which the owner or its parent, subsidiary, or sister company has an ownership interest.

2. Installation, repair, and replacement of portable heating, cooling, and refrigeration equipment. (Portable equipment is not permanently installed into or onto a structure or premises; not directly wired or piped; not connected to duct work; and does not require the venting of combustible products).

3. Installation, repair, and replacement of domestic stoves, ranges, dryers, and other domestic appliances.

4. Work for a public utility regulated by the Missouri Public Service Commission.

5. System installation, start-up, warranty service, or warranty repair work that is performed on specialty equipment or appliances by a factory trained technician and certified by the manufacturer of that system to perform such work. Common HVAC systems and common piping system installations do not apply for this license exemption.

6. Work historically and traditionally performed by boiler makers except for repair and alteration of boilers, steam generators, and pressure vessels with respect to which the provisions of Section 112.10 shall apply.

7. Installation, repair, and replacement of elevators, escalators, dumbwaiters, moving walks, hoists, automotive lifts, conveyors, freight lifts, and manlifts.

8. Work which does not require a permit under the provisions of this code.

9. Receiving, unloading, moving, and storing of machinery and related equipment.

10. Fabrication and installation of process ducts and process sheet metal blow pipe systems.

11. Any refrigeration work involving less than 1-ton of refrigeration, including, but not limited to, such work on reach-in coolers, walk-in coolers, water coolers, beverage and beer dispensing machines and related equipment, beverage coolers, soda carbonated systems, reach-in freezers, and walk-in freezers. In those cases where any refrigeration system is composed of several individual but connected units or split systems, each such individual unit or split system shall be considered a separate unit or system for purposes of this exemption.

12. Minor repairs or replacements to any existing equipment or systems that are part of a commercial, industrial, manufacturing, or process facility, including, but not limited to, ordinary repairs for the purpose of maintenance and service of equipment and systems; the repair or replacement of any minor part of a piece of equipment provided such repair does not alter the approval of the equipment or system; the replacement of piping within the heating and cooling equipment; replacement of leaking or defective valves, fittings, or connections of system components; changing of belts, parts, filters, or similar items; lubrication of equipment; testing and balancing of equipment and systems; and similar service work.

Add Section 113 to read as follows:

SECTION 113 BOARD OF EXAMINERS FOR SPRINKLER SYSTEM CONTRACTORS

113.1 General. There is hereby established a Board of Examiners for sprinkler system contractors, hereinafter referred to as "the Board." The Board shall act in an advisory capacity to the code official in the preparation of rules and regulations regarding the installation, inspection, and maintenance of fire suppression systems consistent with the provisions of this code and the Building and Fire Codes.

113.1.1 Composition of the Board. The Board of Examiners for Sprinkler System Contractors shall consist of five members: the Building Commissioner or duly authorized representative, the fire official or duly authorized representative, and three members appointed by the Mayor.

The Mayor shall appoint one licensed employing sprinkler contractor, one registered professional engineer with experience in fire suppression sprinkler system design, and one licensed journeyman sprinkler

fitter each of whom shall be a resident of the City of Saint Louis and shall have been actively engaged at the trade or business of sprinkler systems for five years in the Saint Louis metropolitan area. If no City resident is available to sit on the Board, a St. Louis County resident may fill in with the approval of the Mayor's Office. Once a qualified City resident is available the county resident may be replaced.

113.1.2 Term of Office; Compensation. The appointed members of the Board shall serve a term of four years or until their successors are appointed. Appointed members shall be compensated for services rendered on a per meeting basis as established by ordinance and subject to budgeted funds availability.

113.1.3 Meetings. Three members of the Board in attendance shall constitute a quorum. An affirmative vote of three Board members is necessary for the approval of any motion. The Board shall elect one of its members to be the Chairman. Suitable quarters for the use of the Board shall be provided by the Building Division.

113.2 Powers and duties of the Board. It shall be the duty of the Board to meet as often as necessary to hear and determine any charges or complaints which may be lawfully made against any licensed sprinkler contractor or licensed journeyman sprinkler fitter, approve applications, and transact any other lawful business of the Board. Meetings may be held at the request of the Chairman of the Board.

1. *Administration.* The Board shall receive applications and after review they shall approve or deny them based on Sections 113.4, 113.5, or 113.6.

2. *Test.* The Board shall prescribe the administration, form, and content of tests for journeyman sprinkler fitters and sprinkler fitter contractors and the form and content of licenses as described herein. The passing grade for each test shall be 75% or better.

3. *Complaints.* All complaints by citizens concerning sprinkler fitting procedures or rules and regulations shall be made to the Board in writing. After a thorough investigation, the Board shall respond in writing to each complaint.

4. *Rule Making Authority.* The Board shall request from the code official to adopt policy memo changes in accordance with Section 104.1.4 of this code.

5. *Inspection.* The Board shall order the inspection of any sprinkler system whenever deemed necessary for the public safety.

6. *Revocation/Suspension of Licenses.* After investigation and hearings in accordance with Section 113.9, the Board may revoke or suspend any license that it has issued.

7. *Licensing and Registration.* The Board shall, pursuant to the regulations and standards herein set forth, determine the qualifications of and provide for the examining, licensing, registration, or certification of applicants who meet the qualifications and successfully pass the appropriate examinations, if required, under this code. Evidence of license shall be provided to those who meet the qualifications and successfully pass the appropriate examination or successfully meet all requirements of renewal of the license. This evidence of license shall remain the property of the City of Saint Louis and shall be surrendered immediately when demanded under conditions listed elsewhere in this section.

113.3 Secretary of the Board; Duties. The code official shall appoint a Secretary to the Board of Examiners for Sprinkler System Contractors. The Secretary shall be non-voting. It shall be the duty of the Secretary to:

1. Keep full and complete records of the proceedings of the Board;

2. Keep a file of the name, residence, and place of business of every licensed person engaged in or working at the business of sprinkler fitting in the City of Saint Louis (these records shall be updated within ninety days of the renewal period stated in Section 113.8);

3. Give all applicants for examination a written notice of the date and place of examination. The Secretary shall give the applicant an informational letter on examination procedures with an outline of suggested study for the examination applied for;

4. Return all incomplete applications to the applicants.

All records shall be open to supervised public inspection during normal working hours, subject to staff availability. Test questions and answers shall not be open to the public.

113.4 License as a sprinkler Contractor. An applicant shall successfully complete all of the following requirements in order to receive a license as a sprinkler contractor:

1. Applicant shall complete application provided by the Mechanical Section.

2. Applicant shall have served a five year apprenticeship and have five years of experience as a certified

sprinkler fitter or the applicant shall have ten years of experience as a certified sprinkler fitter. (Five years of experience consists of a minimum of 8,500 working hours with a maximum of 1,700 working hours considered for any one year.) Equivalent training and experience shall also be considered. Equivalent training and experience shall mean a degree in engineering from an accredited university in which the applicant shall have received training in the design of sprinkler systems, planning and installation of same, and has had three years of experience in the design, planning, and installation of sprinkler systems and must be a registered professional engineer licensed to practice in the State of Missouri.

3. Applicant's credentials shall be reviewed by the Board as to qualifications and experience. The applicant shall provide proof of knowledge, training, and experience through transcripts from educational institutions, apprenticeship agreements, reference letters from employers, and other documents as requested by the Board.

4. The Secretary of the Board shall arrange a testing date with the approved applicant. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant shall schedule the test within ninety days of approval. The applicant is responsible for all testing fees.

5. Applicants shall successfully complete the written examination and receive a passing grade on all parts of the examination.

6. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants who pass shall be notified to come to the Mechanical Section and obtain their license. Applicants that have failed the examination for the first time shall be notified that they may schedule a re-take of the examination after ninety days. Applicants that have failed the examination for a second time shall be notified that they may schedule a re-take of the examination after an additional 180 days. Applicants that have failed the examination for a third time shall wait a minimum of twelve months before re-application and re-testing. The applicant is responsible for all application and testing fees.

7. Successful applicants shall bring a certificate of liability insurance for bodily injury and property damage in the amount of at least one million dollars naming the applicant as an additionally insured and the license fee required by Table 113.7 to the Mechanical Section in order to be issued a license as a sprinkler contractor.

113.5 License as a Journeyman Sprinkler Fitter. An applicant shall successfully complete all of the following requirements in order to receive a license as a journeyman sprinkler fitter:

1. Applicant shall complete application provided by the Mechanical Section.

2. Applicant shall have a minimum of five years of experience as an apprentice in the installation of sprinkler systems under the direct personal and immediate supervision of a licensed journeyman sprinkler fitter or licensed sprinkler contractor in the City of Saint Louis, or have a license issued by another licensing authority in another jurisdiction, or equivalent training and experience prior to the date of the examination. (Five years of experience consists of a minimum of 8,500 hours with a maximum of 2,000 working hours considered for any one year.) The applicant shall receive a one-year credit toward their five year apprenticeship training when presenting a certificate of completion from a trade or technical school recognized by the Board.

3. The applicant shall provide proof of knowledge, training, and experience through transcripts from educational institutions, apprenticeship agreements, letters of reference from employers, and any other documents requested by the Board.

4. Applicant's qualifications shall be reviewed by the Board for approval to take the written examination.

5. The Secretary of the Board shall arrange a testing date with the approved applicant. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant shall schedule the test within ninety days of approval. The applicant is responsible for all testing fees.

6. Applicant shall successfully complete the written examination and receive a passing grade on all parts of the examination.

7. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants who pass shall be notified to come to the Mechanical Section and obtain their license. Applicants that have failed the examination for the first time shall be notified that they may schedule a re-take of the examination after ninety days. Applicants that have failed the examination for a second time shall be noti-

fied that they may schedule a re-take of the examination after an additional 180 days. Applicants that have failed the examination for a third time shall wait a minimum of twelve months before re-application and re-testing. The applicant is responsible for all application and testing fees.

8. Successful applicants shall bring the license fee required by Table 113.7 to the Mechanical Section in order to be issued a license as a journeyman sprinkler fitter.

113.6 Registration as an Apprentice Sprinkler Fitter. Every applicant learning the business or trade of sprinkler fitting within the City of Saint Louis shall be registered by the Board and shall receive a registration from the Board with "Apprentice" plainly marked on it, the name of the applicant, and the date issued. The registration fee for an apprentice shall be as prescribed in Table 113.7 and the registration will be issued for a five-year period.

The apprentice's employer shall furnish a notarized letter to the Board naming all journeyman sprinkler fitters and all apprentice sprinkler fitters in their employ.

An apprentice who is undergoing an apprenticeship or course of training for the purpose of learning the trade of sprinkler fitting shall perform no work regulated by this code or its amendments except as an assistant under the direct personal and immediate supervision of a journeyman sprinkler fitter or sprinkler contractor licensed under the terms and provisions of this code.

The apprentice registration shall not be renewed. Upon written application, the apprentice's registration shall be allowed to be extended for a maximum of six months if the apprentice has been approved to take the journeyman sprinkler fitter examination as prescribed in Section 113.5. It shall be mandatory for an apprentice sprinkler fitter on the completion of their five-year training period to make application for the journeyman sprinkler fitter's examination.

113.7 Fees. Fees for sprinkler contractor licenses, journeyman sprinkler fitter licenses, and apprentice sprinkler fitter registrations shall be as set forth in Table 113.7. Application fees for sprinkler contractor and journeyman sprinkler fitter licenses and registration fees for apprentice sprinkler fitters shall be due at time of application. License Fees shall be due upon issuance of licenses. Application fees shall not be refunded in the event that the applicant fails to complete the requirements for licensing as set forth in Sections 113.4 and 113.5.

Table 113.7

LICENSE FEES—BOARD OF EXAMINERS FOR SPRINKLER SYSTEM CONTRACTORS

Item	Fee	Duration	Remarks
Sprinkler contractor license	$100.00	3 years	Section 113.4
Journeyman sprinkler fitter license	$45.00	3 years	Section 113.8
Apprentice sprinkler fitter registration	$10.00	5 years	Section 113.6

113.7.1 Licenses Obtained Between Renewal Dates. Any new license issued more than thirty days prior to the renewal date shall expire on the renewal date. Fees for licensees shall be prorated as shown in Table 113.7.

113.8 Renewal Date of licenses. The renewal of all licenses for sprinkler contractors and journeyman sprinkler fitters shall be due three years after the date issued. Licenses shall be renewed up to sixty days prior to but not more than thirty days after the license, registration, or certification expires. Following the grace period, any sprinkler contractor or journeyman sprinkler fitter who has not renewed shall be required to re-apply and re-test in order to obtain a new license at the discretion of the Board.

113.8.1 Failure of Sprinkler Contractor to Renew. The failure of any sprinkler contractor to renew their license during the grace period shall terminate their license and no permit for doing work under this code or any other ordinance of the City of Saint Louis shall be issued to them until after they have obtained a new license following re-application and re-testing (if necessary) and they shall be disqualified from carrying on any work authorized to be done under any permit theretofore issued to them or any job unfinished at the date of termination of their license.

113.9 Suspension or Revocation of Licenses. Upon receipt of a written complaint to the Board filed by the Building Commissioner or any aggrieved person, or

upon the Board's own motion, the Board shall make an investigation when it may deem necessary and shall conduct a hearing upon such complaint.

113.9.1 Cause for Suspension or Revocation. The following offenses shall be cause for a hearing on a sprinkler contractor's or journeyman sprinkler fitter's license:

1. The license holder has obtained a license by fraud or misrepresentation;

2. The license holder has intentionally violated any of the provisions of this code or of the Building or Fire Codes;

3. The license holder is found to be negligent, unskilled, or unfaithful in their work or found to be unfit, incompetent, or untrustworthy in the work of sprinkler fitting;

4. The license holder has intentionally employed an unlicensed person to perform sprinkler fitting work covered by this code;

5. The license holder has directed apprentices to work without the supervision of a licensed journeyman sprinkler fitter;

6. The license holder has obtained permits for individuals who are not in their employ or under their supervision;

7. The license holder is the subject of disciplinary action by another jurisdiction upon grounds for which suspension or revocation is authorized in this code.

113.9.2 Notice of Hearing. Within thirty calendar days after the filing of a written complaint at the Board meeting, a notice of hearing shall be sent to the license holder. The notice shall be served to the last known address by certified mail, return receipt requested, at least ten days prior to any scheduled hearing and shall include:

1. A statement of the time, place, and nature of the hearing;

2. A reference to the particular section(s) of the code and rules involved;

3. A short, plain statement of the complaint and a statement of the issues before the Board;

4. A statement that the nature of the proceeding before the Board will be a formal inquiry into the complaint, at which time an opportunity will be afforded the individual or contractor to respond to the allegations in the complaint by their testimony, the testimony of witnesses, or by documentary evidence;

5. A statement that the journeyman sprinkler fitter or sprinkler contractor has a right to be represented by legal counsel; and

6. A statement that based upon the evidence presented at the hearing, the Board may suspend or revoke the apprentice's, journeyman sprinkler fitter's, or sprinkler contractor's license.

113.9.3 Determining Vote. A decision to suspend or revoke an apprentice's, journeyman sprinkler fitter's, or sprinkler contractor's license shall require the concurring vote of at least three members of the Board.

113.9.4 Decision of the Board. All rulings or decisions of the Board shall become final and binding upon all parties thereto unless appealed to the Board of Building Appeals as provided for in the Building Code. Upon suspension or revocation, a license holder shall surrender the license at the close of the hearing.

113.9.5 Enforcement Stayed. Upon an appeal of a decision of this Board to the Board of Building Appeals, enforcement of any ruling or decision by this Board shall be stayed until the Board of Building Appeals has rendered its decision.

113.9.6 Reinstatement of License. A revoked license or registration maybe reinstated by order of the Board only upon application and examination, if required by the Board, and in the same manner as provided for hereunder for new applicants.

113.10 Hardship Clause. In the event of a loss of a master licensee to a company employing tradesmen licensed in the City of Saint Louis through no fault of that company, a licensed journeyman of the trade of the absent master licensee who shall be a full time employee of that company shall be designated as an interim master after meeting all bonding and insurance requirements. That company may operate under an interim master who shall have the same rights, responsibilities, and standing of a master in that trade for a period of not more than one year from the date of the hardship. The code official shall determine judgment of fault.

Disagreement of judgment may be appealed to the Board, which shall hold an emergency hearing no later than fourteen calendar days following the date the appeal is received by the Secretary of the Board. The decision of the Board involving a hardship clause may be appealed in the same manner as other decisions of the Board. Additional appeals may be made pursuant to the procedures in Section 109 of this code.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Change Section 201.3 to read as follows:

201.3 Terms Defined in Other Codes. Where terms are not defined in this code and are defined in the Building, Electrical, Fire, Fuel Gas, or Plumbing Code, such terms shall have meanings ascribed to them as in those codes.

Add the following definitions to Section 202:

Apprentice. Anyone who has been licensed pursuant to this code to perform work that requires a license under the supervision and inspection of a journeyman in the employ of a contractor in one of the following categories:

1. A pipefitter apprentice is anyone who has been licensed under this code to perform process piping system work under the supervision and inspection of a pipefitter journeyman.

2. A Sheet Metal Apprentice is anyone who has been licensed under this code to perform HVAC duct system work under the supervision and inspection of a sheet metal journeyman.

3. An HVAC Servicer-Installer Apprentice is anyone who has been licensed under this code to perform HVAC servicer-installer work under the supervision and inspection of an HVAC servicer-installer journeyman, pipefitter journeyman or sheet metal journeyman.

Base flood elevation. A reference point determined in accordance with the Building Code based on the depth or peak elevation of flooding including wave height which has a 1 percent (100-year flood) or greater chance of occurring in any given year.

Board. The Board of Examiners for Mechanical Licensing of the City of Saint Louis.

Contractor. An individual or entity who is licensed under this code to perform work on any or all of the following: process piping systems, HVAC duct systems, HVAC piping systems, or HVAC systems.

Entity. Any company, corporation, partnership, joint venture, or other business establishment which performs work that requires a license under this code.

Gangway. Area between two close structures generally used as, but not limited to, passage between two houses in an urban setting.

HVAC duct system. All or any part of the duct system for a heating, ventilation, or air conditioning system regardless of the materials used, including ducts, duct fittings, risers, stacks, dampers, casings, recess boxes, roof top unit curbs, radiator enclosures, exhausts, ventilators, frames, grilles, louvers, registers, cabinets, plenums, air filters, fans, motors and accessory air handling equipment, and appliances.

HVAC duct system work. All work related to the installation, alteration, reconstruction, repair, replacement, and other servicing of an HVAC duct system as well as HVAC servicer installer work as defined herein.

HVAC piping system. All or any part of the piping system a for heating, ventilation, or air conditioning system including pipes, valves, pipe fittings, pumps, and distribution lines and accessory equipment including boilers and compressor assemblies.

HVAC piping system work. All work related to the installation, alteration, reconstruction, repair, replacement, and other servicing of HVAC piping systems as well as HVAC servicer installer work as defined herein.

HVAC servicer-installer contractor. An individual or entity licensed to perform work under this code who employs at least one HVAC servicer-installer journeyman.

HVAC service-installer contractor. A person licensed under this code who may only pull permits for HVAC Servicer-Installer work as defined by Section 112.

HVAC servicer-installer work. All work related to the installation, alteration, reconstruction, repair, replacement, and servicing of equipment of HVAC systems:

1. That provides no more than 14 tons of air conditioning;

2. That provides no more than 300,000 BTUs of heating;

3. That operates at a pressure of less than 15 psi of steam;

4. That provides of no more than 5,000 CFM of ventilation; and

5. That provides of no more than 5,000 CFM of exhaust.

HVAC system. A heating, ventilation, or air conditioning system or any part thereof including an HVAC piping system or HVAC duct system specifically addressed and regulated in this code.

Note: If an HVAC system consists of multiple individual units or split systems, each such individual unit or split system shall be considered a separate system for purposes of this section.

Journeyman. Anyone who is licensed under this code to perform work under one of the following categories.

1. A pipefitter journeyman is anyone who has been licensed under this code to perform process piping system work.

2. A sheet metal journeyman is anyone who has been licensed under this code to perform HVAC duct system work.

3. An HVAC servicer-installer journeyman is anyone who has been licensed under this code to perform HVAC servicer-installer work.

Mechanical contractor. An individual or entity licensed to perform work under this code who employs at least one pipefitter journeyman.

Plumbing Code. The Plumbing Code adopted by the City of Saint Louis.

Portable cooking appliance. A single, non-permanent electrical cooking appliance (not attached with screws, clamps, or other fastening devices). A portable cooking appliance shall be counter- or tabletop-mounted; shall be less than 2 feet (610 mm) in any dimension; and shall weigh less than 100 pounds (454 kg). The owner or operator of a portable cooking appliance shall be able to provide the Mechanical Inspection Section with manufacturer's information documenting the above information. Fryers and cook tops that may be used for frying shall not be used. Each occupancy shall be limited to the use of 2 such portable appliances. Microwave ovens shall not be included in this count.

Portable HVAC equipment. HVAC equipment that is not permanently installed into or onto a structure or premises, not directly wired or piped, not connected to duct work, and does not require the venting of combustion products.

Process piping system. All or any part of a piping system (excluding fire suppression systems), which falls within one of the following categories:

1. A medical gas system.
2. An HVAC piping system.
3. A pneumatic system.
4. A pressurized or vacuum piping system.
5. A fuel gas system.
6. An oxygen system.
7. A gasoline system not for public sale.

Process piping system work. All work related to the installation, alteration, reconstruction, repair, replacement, and other servicing of process piping systems and shall be installed by pipefitters or HVAC Servicer-Installers as defined in Section 112.

Sheet metal contractor. An individual or entity licensed to perform work under this code who employs at least one sheet metal journeyman.

Workmanlike. Executed in a skilled manner, e.g., generally plumb, level, square, in line, undamaged, and without marring adjacent work.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Change Section 301.10 to read as follows:

301.10 Electrical. Electrical wiring controls and connections to equipment and appliances regulated by this code shall be in accordance with the electrical code.

Add Section 301.10.1 to read as follows:

301.10.1 Service Disconnects. Service disconnects shall not be mounted on equipment or appliances, shall be located within 25' of such equipment or appliances, and shall be in the sight line of same.

Exception: Factory installed disconnects.

Add Sections 301.19 and 301.19.1 to read as follows:

301.19 Annual Inspections. Annual inspections shall be performed by the code official or approved third party testing agency on the following mechanical equipment: auto lifts, boilers, unfired pressure vessels, refrigeration systems for which monitoring equipment is required, and equipment used for smoke control.

Exceptions: Boilers serving 6 or fewer residential dwelling units.

301.19.1 Independent Inspector. Any boiler that is required to be operated by a Stationary Engineer per Section 111 of this code shall be inspected annually by an independent inspector that is certified with "The National Board of Boiler and Pressure Vessel Inspectors." Copies of these independent inspection reports shall be provided to the Section of Mechanical Equipment Inspection.

Add Section 301.20 to read as follows:

301.20 Motor Vehicles. Motor vehicles used for mechanical, sheet metal, and HVAC work shall be permanently and prominently labeled with company name and phone number. Letters and numbers shall not be less than four inches in height.

Add Section to read as follows:

302.6 Stud Guards. When the edge of bored holes is less than one inch (25mm) from the edge of a stud or

joist and when notched studs or joists are covered, stud guards shall be installed to protect service lines from fastener damage.

Add Section 303.10 to read as follows:

303.10 Exterior Walls. Equipment and appliances shall not be installed on exterior walls.

Exceptions:

1. One- and two-family dwellings where equipment and appliances are not located above seven feet from grade, not above walkways, and not installed in gangways.

2. When installed in conjunction with a working platform and access. Working platforms and access shall comply with Sections 306.5 and 306.5.1 of this code.

Add Section 303.11 to read as follows:

303.11 Property Line. Equipment or appliances shall not be located within 3 feet of property lines, "set back."

Add Section 304.1.1 to read as follows:

304.1.1 Heating Equipment. All heating equipment shall be permanently installed.

Add Section 304.13 to read as follows:

304.13 Equipment Guards. Pulleys, belts, gears, and similar equipment shall be protected by an approved guard.

Change Section 307.2.4 to read as follows:

307.2.4 Traps. Condensate drains shall be trapped as required by the equipment or appliance manufacturer. An air gap shall be provided between the drain line and sewer.

Change Section 307.2.4.1 to read as follows:

307.2.4.1 Ductless mini-split systems. Ductless mini-split systems that produce condensate shall be trapped in accordance with manufacturers' installation instructions.

CHAPTER 5 IS AMENDED AS FOLLOWS:

Add Section 504.5.1 to read as follows:

504.5.1 Interlock. An interlock system shall be used to prevent the dryer from operating in the event that the dryer exhaust duct power ventilator (booster fan) fails to operate.

Add Section 504.5.2 to read as follows:

504.5.2 Location. The dryer exhaust duct power ventilator (booster fan) shall be located in the same room as the dryer.

Change Section 506.3.8 # 2 to read as follows:

2. Sections of grease ducts that are inaccessible from the hood or discharge openings shall be provided with cleanout openings spaced not more than 20 feet apart and not more than 10 feet from changes in direction that are 45 degrees or greater.

Add Section 506.6 to read as follows:

506.6 Cleaning. Hoods, grease-removal devices, fans, ducts, and other appurtenances shall be cleaned at intervals to prevent the accumulation of grease. Cleaning schedule and dates of previous cleanings shall be recorded and records shall be maintained on the premises.

Change Sections 507.1 to read as follows:

507.1 General. Commercial kitchen exhaust hoods shall comply with the requirements of this section. Hoods shall be Type I or II and shall be designed to capture and confine cooking vapors and residues. A Type I or Type II hood shall be installed at or above all commercial cooking appliances in accordance with Section 507.2 and 507.3. Where any cooking appliance under a single hood requires a Type I hood, a Type I hood shall be installed. Where a Type II hood is required, a Type I or Type II hood shall be installed. Where a Type I hood is installed, the installation of the entire system, including the hood, ducts, exhaust equipment, and makeup air system shall comply with the requirements of Sections 506, 507, 508, and 509.

Exceptions:

1. Factory-built commercial exhaust hoods that are listed and labeled in accordance with UL 710 and installed in accordance with Section 304.1 shall not be required to comply with Sections 507.1.5, 507.2.3, 507.2.5, 507.2.8, 507.3.1, 507.3.3, 507.4 and 507.5.

2. Factory-built commercial cooking recirculating systems that are listed and labeled in accordance with UL 710B and installed in accordance with Section 304.1 shall not be required to comply with Sections 507.1.5, 507.2.3, 507.2.5, 507.2.8, 507.3.1, 507.3.3, 507.4 and 507.5. Spaces in which such systems are located shall be considered to be kitchens and shall be ventilated in accordance with Table 403.3.1.1. For the purpose of determining the floor area required to be ventilated, each individual appliance shall be considered as occupying not less than 100 square feet.

3. Where cooking appliances are equipped with integral down-draft exhaust systems and such appliances and exhaust systems are listed and labeled for the application in accordance with NFPA 96, a hood shall not be required at or above them.

4 Portable cooking appliances shall not exceed two per occupancy. Any portable cooking appliance for which the manufacturer recommends venting shall be vented.

Change Section 507.2 to read as follows:

507.2 Type I hoods. Type I hoods shall be installed when cooking appliances produce grease or smoke as a result of the cooking process. Type I hoods shall be installed over medium-duty, heavy-duty, and extra-heavy-duty cooking appliances.

Exception: A Type I hood shall not be required for an electric cooking appliance where an approved testing agency provides documentation that the appliance effluent contains 5mg/m3 or less of grease when tested at an exhaust flow rate of 500 cfm in accordance with UL 710B. A Type II hood shall be installed above the electrical cooking appliance and the hood shall be sized for the one electrical appliance only.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Change Section 603.4 Exception to read as follows:

603.4 Metallic ducts.

Exception: Ducts installed within single dwelling units shall have a minimum thickness of 28 gage.

Change Section 603.6.1.1 to read as follows:

603.6.1.1 Duct Length. Flexible air ducts shall be limited in length to 14 feet.

CHAPTER 10 IS AMENDED AS FOLLOWS:

Change Section 1001 to read as follows:

1001.1 Scope. In addition to the other provisions of this code, this chapter shall govern the installation, alteration, and repair of water heaters, boilers, and pressure vessels. The provisions of the ASME Code for Boilers and Pressure Vessels as listed in Chapter 15 shall apply.

Exceptions:

1 Pressure vessels used for unheated water supply.

2. Portable pressure vessels and Interstate Commerce Commission containers.

3. Containers for liquefied petroleum gases, bulk oxygen, and medical gas installed per the Medical Gas and Vacuum Systems Installation Handbook.

4. Pressure vessels having a volume of 5 cubic feet (0.14 m3) or less operating at pressures not exceeding 250 psi (1,724 kPa) and located within occupancies of Use Groups B, F, H, R, S, and U.

5 Pressure vessels used in refrigeration systems that are regulated by Chapter 11 of this code.

6. Pressure tanks used in connection with coaxial cables, telephone cables, power cables, and other similar humidity control systems.

7. Any boiler or pressure vessel installed in a federal or state owned and operated property.

1001.2 Periodic inspections. All boilers, steam generators, and pressure vessels subject to the provisions of this code shall be inspected annually by an approved independent third-party testing agency. Inspection reports shall be filed with the Mechanical Section of the Building Division.

1001.2.1 Conduct of Inspections. The conduct of these inspections shall be in accordance with the current edition of the National Board Inspection Code, Part 2.

1001.2.2 Inspector Qualifications. Inspectors conducting these inspections must have current IS Commissions issued by the National Board of Boilers and Pressure Vessel Inspectors.

Exception: Heating boilers or pressure vessels which are located in buildings of Use Group R-3 or Use Group R-2 having six dwelling units or less.

1001.3 Certificate of Inspection. A boiler, steam generator, or pressure vessel subject to the provisions of this code shall not be placed in operation until a sticker denoting inspection and approval has been applied to the vessel.

1001.4 Major Repairs. Welded repairs to boilers, steam generators, and pressure vessels subject to the provisions of this code shall be performed only by those organizations which possess the appropriate ASME Certificate of Authority with extension to field work or an "R" Certificate of Authority issued by the National Board of Boiler and Pressure Vessel Inspectors. A permit shall be required for such work. The fee shall be the same as the fee for installation of the vessel as set forth in Table 106.5.2. A hydrostatic test shall be performed on the vessel before it is returned to service.

1001.5 Condemnation. Any boiler or pressure vessel which, in the opinion of the code official, constitutes a hazard shall be deemed unsafe and sealed out of service.

Change Sections 1002.1 thru 1002.3 to read as follows:

1002.1 General. Potable water heaters and hot water storage tanks shall be listed and labeled and installed in accordance with the manufacturer's installation instructions, the Plumbing Code, and this code. All water heaters shall be capable of being removed with-

out first removing a permanent portion of the building structure. The potable water connections and relief valves for all water heaters shall conform to the requirements of the Plumbing Code. Domestic electric water heaters shall comply with UL 174 or UL 1453. Commercial electric water heaters shall comply with UL 1453. Oil-fired water heaters shall comply with UL 732.

1002.2 Water Heaters Utilized for Space Heating. Water heaters utilized both to supply potable hot water and provide hot water for space-heating applications shall be listed and labeled for such applications by the manufacturer and shall be installed in accordance with the manufacturer's installation instructions and the Plumbing Code.

1002.3 Supplemental Water-Heating Devices. Potable water-heating devices that utilize refrigerant-to-water heat exchangers shall be approved and installed in accordance with the Plumbing Code and the manufacturer's installation instructions.

Change Section 1004.6 to read as follows:

1004.6 Boiler Rooms and Enclosures. Boiler rooms and enclosures and access thereto shall comply with the Building Code and Chapter 3 of this code. Boiler rooms shall be equipped with a floor drain or other approved means for disposing of liquid waste. In addition, except for one- and two-family dwellings or when the boiler is entirely within a dwelling unit, all other boilers or combination boilers shall be installed in a room protected by an enclosure designed to prevent unauthorized entry. Storage or living quarters shall not be permitted in any boiler or similar heating equipment room.

Change Sections 1005.1 and 1005.2 to read as follows:

1005.1 Valves. Every boiler or modular boiler shall have shutoff valve in the supply and return piping. For multiple boiler or multiple modular boiler installations, every boiler or modular boiler shall have individual shutoff valves in the supply and return piping.

1005.2 Potable Water Supply. The water supply to all boilers shall be connected in accordance with the Plumbing Code.

Change Section 1006.1 to read as follows:

1006.1 Safety Valves for Steam Boilers. All steam boilers shall be protected by safety valves as required by the ASME Code for Boiler and Pressure Vessels listed in Chapter 15.

Change Section 1006.6 to read as follows:

1006.6 Safety and Relief Valve Discharge. Safety and relief valve discharge pipes shall be of rigid pipe that is approved for the temperature of the system. The discharge pipe shall be the same diameter as the safety or relief valve outlet. Safety and relief valves shall not discharge so as to be a hazard, a potential cause of damage, or otherwise a nuisance. High-pressure-steam safety valves shall be vented to the outside of the structure. Where a low-pressure safety valve or a relief valve discharges to the drainage system, the installation shall conform to the Plumbing Code.

Change Sections 1008.1 and 1008.2 to read as follows:

1008.1 General. Every steam boiler shall be equipped with one gate valve and one quick-opening blow-off valve in series in each blow-down line. The valves shall be installed in the opening provided on the boiler. The minimum size of the valve shall be the size specified by the boiler manufacturer or the size of the boiler blow-off valve opening.

1008.2 Discharge. Blow-off valves shall discharge to a safe place of disposal. Where discharging to the drainage system, the installation shall conform to the Plumbing Code.

Change Section 1009.3 to read as follows:

1009.3 Open-Type Expansion Tanks. Open-type expansion tanks shall be located a minimum of 4 feet (1219 mm) above the highest heating element. The tank shall be adequately sized for the hot water system. An overflow with a minimum diameter of 1 inch (25.4 mm) shall be installed at the top of the tank. The overflow shall discharge to the drainage system in accordance with the Plumbing Code.

Add Section 1011.1.1 to read as follows:

1011.1.1 Test of Existing Vessels. The pressure for vessels previously in service shall be as specified in the National Board Inspection Code listed in Chapter 15.

Add Section 1012 to read as follows:

SECTION 1012 BLOW-OFF TANKS

1012.1 General. Blow-off tanks shall be designed and fabricated in accordance with Section VIII of the ASME Boiler Code as listed in Chapter 15 and shall be so stamped.

1012.1.1 Boilers Less Than 100 psi. For boilers carrying one hundred psi steam pressure or less, the heads and shell shall be constructed of not less than one-fourth inch steel or equivalent strength material.

1012.1.2 Boilers Greater Than 100 psi. For boilers carrying in excess of one hundred psi pressure, tanks shall be fabricated of materials designed for the pressures carried.

1012.2 Size. The size of the tank shall be indicated by the blow down requirements, and the tank installed shall be large enough to blow down one gauge glass of water from one boiler or from any one of a battery of boilers interconnected. The size of the tank shall be of sufficient capacity so the blow down water from the boiler will only fill one-half the capacity of tank, and the remaining volume of the tank will be available for the vapor displacement.

1012.3 Discharge. The discharge from the boiler or boilers shall enter the tank above the high water level or surface of the water in such tank. A baffle plate shall be installed in the tank in line with the inlet pipe from the boiler and shall be at least twelve inches from the discharge opening from the boiler into the tank. The outlet opening or discharge from the tank shall be at least two times the area of the inlet pipe, and such outlet pipe shall have an internal pipe built into the tank, extending downward to within four inches of the bottom of the tank. The discharge pipe shall be connected to a sewer through a running trap or to an approved leaching well.

1012.4 Venting.

1012.4.1 Vent Pipe Size. All blow-off tanks shall be properly vented to the outside atmosphere. Such vent pipes shall be at least four times the area of the inlet pipe from the boiler, and such pipe shall not be less than two-inch iron pipe size.

1012.4.2 Pipe Discharge. The vent pipe shall be run as directly as possible to the outside atmosphere and in a suitable location so that any steam or water discharged by the blow down of the boiler would not be dangerous or injurious to life.

1012.4.3 Vent Obstructions. The vent shall be free of any pockets or sags that might collect or hold water or cause an obstruction of the pipe and pressure buildup in the tank. The end of the vent pipe shall be protected from the possibility of any obstruction.

1012.5 Manhole. Each blow-down tank shall be provided with a suitable manhole for the inspection and cleaning of the tank.

Add Section 1013 to read as follows:

SECTION 1013 RETURN CONDENSATE

1013.1 Maximum Temperature. The return condensate from a building heated by a central steam supply shall be permitted to be discharged either into a condensate return system or wasted into a sewer drain connection or approved leaching well. This condensate when discharging into a sanitary sewer system shall not be in excess of 140°F and shall discharge into an open floor drain or a special drain connection or approved receptor. If the floor drain or drain connection to the sewer is above the level of the return piping so that it cannot flow by gravity, an automatic sump pump shall be installed to pump the condensate from the sump to the sewer drain.

Add Section 1014 to read as follows:

SECTION 1014 FIELD ASSEMBLY

1014.1 Welding. Any welding required during assembly shall be performed by welders employed and qualified by companies in possession of the appropriate ASME Certificate of Authorization.

CHAPTER 11 IS AMENDED AS FOLLOWS:

Change Section 1101.4 to read as follows:

1101.4 Water Connection. Water supply and discharge connections associated with refrigeration systems shall be made in accordance with this code and the Plumbing Code.

Add Section 1110 to read as follows:

SECTION 1110 RESIDENTIAL AIR CONDITIONERS

1110.1 Permits. Mechanical permits shall be required for residential air conditioning units.

1110.2 Residential Split Systems. Condensing units, heat pumps, or any other mechanical equipment or appliances shall not be located in front of buildings, in gangways or within three feet of lot lines.

1110.3 Condenser Foundations. All condensing units mounted on grade must be located on a level, two-inch-thick concrete pad or a level, two-inch-thick plastic pad or other foundation approved by the code official prior to installation.

1110.4 Protection of Refrigerant Lines. All piping installed above grade, or underground, shall be protected from damage and corrosion in keeping with recognized standard practice and the recommendations of the manufacturer.

1110.5 Units in Areaways. Where gangways less than four feet in width exist between buildings, all window units shall be installed not less than seven feet above grade.

CHAPTER 12 IS AMENDED AS FOLLOWS:

Change Section 1201.1 to read as follows:

1201.1 Scope. The provisions of this chapter shall govern the construction, installation, alteration, and repair of hydronic piping systems. This chapter shall apply to hydronic piping systems that are parts of heating, ventilation, and air-conditioning systems. Such piping systems shall include steam, hot water, chilled water, steam condensate, and ground source heat pump loop systems. Potable cold and hot water distribution systems shall be installed in accordance with the Plumbing Code.

Add Section 1201.3 to read as follows:

1201.4 Ground Source Heat Pump Loop Systems. Ground source heat pump loop systems shall be installed a minimum of 10 feet (3048 mm) from the property line

Delete Section 1204.2.

Change Section 1206.2 to read as follows:

1206.2 System Drain Down. Hydronic piping systems shall be designed and installed to permit the system to be drained. Where the system drains to the plumbing drainage system, the installation shall conform to the requirements of the Plumbing Code.

Change Sections 1206.3 and 1206.4 to read as follows:

1206.3 Protection of Potable Water. The potable water system shall be protected from backflow in accordance with the Plumbing Code.

1206.4 Pipe Penetrations. Openings for pipe penetrations in walls, floors, or ceilings shall be larger than the penetrating pipe. Openings through concrete or masonry building elements shall be sleeved. The annular space surrounding pipe penetrations shall be protected in accordance with the Building Code.

CHAPTER 14 IS AMENDED AS FOLLOWS:

Change Section 1401.2 to read as follows:

1401.2 Potable Water Supply. Potable water systems shall be protected against contamination in accordance with the Plumbing Code.

CHAPTER 15 IS AMENDED AS FOLLOWS:

Modify Chapter 15 by adding the following:

ANSI American National Standards Institute

30 West University Drive

Arlington Heights, IL 60004

NB-23-National Board Inspection Code, 2013 Edition

1011.1.1

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

(Ord. No. 72037, § 1, 9-19-2025; Ord. No. 70800, § 3, 7-6-2018.)

25.03.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, and shall, upon conviction thereof, be punished by a fine of not more than $500.00, or by imprisonment not exceeding 90 days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense. (Ord. No. 70800, § 4, 7-6-2018.)

Chapter 25.04

PLUMBING CODE

Editor's Note:

Ord. No. 71644, § 1, approved February 20, 2023, repealed former Ch. 25.04, and §§ 2 and 3 enacted a new chapter as set out herein. Former Ch. 25.04, §§ 25.04.010—25.04.310, pertained to similar subject matter and derived from the 1994 Code, §§ 25.04.010—25.04.310; and Ord. No. 69255, approved October 19, 2012.

Prior ordinance history: Ords. 56797, 60514, 60826, 62682, 65031, 65932, 66615, and 69255

City Counselor Ops.: 10497, 10501

Cases:

Collateral estoppel prevented relitigation of the issue of wrongful demolition where the City had, in an earlier action, obtained a judgment on a lien against the proceeds of the condemnation award to recover the costs of demolition. *Dehner v. City of St. Louis,* 688 S.W. 2d 15 (Mo. App. 1985)

Sections:

25.04.010 Adoption.

25.04.020 Amendments.

25.04.030 Penalty clause.

25.04.010 Adoption.

Portions of Ordinance Number 69255 which conflict with the below are hereby replaced with a new Plumbing Code adopting the 2021 Uniform Plumbing Code.

The Uniform Plumbing Code 2021, Twenty-Ninth Edition, as published by the International Association of Plumbing and Mechanical Officials, three (3) copies of which are filed on record in the Office of the Register of the City of Saint Louis, being marked and designated as the Uniform Plumbing Code, including Appendixes A through G and I through N and add, as an additional appendix, O and the same are hereby adopted as "The Plumbing Code of the City of Saint Louis, in the State of Missouri;" for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions and terms of said Building Code are hereby referred to, adopted and made a part hereto, as if fully set out in this chapter with the additions, insertions, deletions and changes prescribed in Section 25.04.020 of this chapter.

(Ord. No. 71644, § 2, 2-20-2023.)

25.04.020 Amendments.

The Uniform Plumbing Code 2021 is amended and changed in the following respects:

Delete Chapter 1 in its entirety with the following substitution:

Add a new Chapter 1 to read as follows:

CHAPTER 1
SCOPE AND ADMINISTRATION

SECTION 101
SCOPE AND GENERAL REQUIREMENTS

101.1 Title. These regulations shall be known as the Plumbing Code of the City of St. Louis, hereinafter referred to as "this Code."

101.2 Scope. This Code shall regulate the design, erection, installation, alteration, repairs, relocation, replacement, addition to, removal, use, maintenance and inspection of plumbing equipment and systems within the City of St. Louis.

101.2.1 Appendices. Certain documents, three copies of which are filed in the Office of the Register of the City of Saint Louis, said copies being marked and designated as the "Uniform Plumbing Code, 2021 (hereinafter "UPC") Edition" "IAPMO/ANSI UPC 2021," including Appendices A through G and I through N, as published by the International Association of Plumbing and Mechanical Officials, together with the Plumbing Review Committee's added section O are hereby referred to, adopted, and made a part hereof, as if fully set out in this Ordinance, with the additions, deletions, insertions and changes prescribed by the following sections herein; provided that should any conflict of interpretations or requirements occur between the provisions of the aforementioned documents and the St. Louis City Ordinances, then said St. Louis City Ordinances shall apply and prevail. Whenever the term "this Code" is used in this Ordinance or in the Uniform Plumbing Code, it shall mean the Uniform Plumbing Code with the additions, deletions, and changes prescribed in this Ordinance. Provisions in the appendices shall not apply unless specifically adopted.

101.2.1.1 Plumbing and Drainage System Related Requirements From Supplemental Codes Adopted. The "Uniform Swimming Pool, Spa, and Hot Tub Code", 2021 (hereinafter "USPSHTC") and the "Uniform Solar Energy Code, 2021 (hereinafter "USEC"), as published by the International Association of Plumbing and Mechanical Officials, are hereby referred to, adopted, and made a part hereof, as if fully set out in this Ordinance.

101.3 Code intent. Declaration of Public Necessity. In accordance with Chapter 341, RSMo 2000, it is hereby found and determined that adoption of a nationally recognized standard plumbing code is necessary for the promotion of the public health and safety of St. Louis City, Missouri. Unless otherwise expressly stated or clearly contrary to the context, terms, phrases, words and abbreviations not defined herein shall be given the meaning set forth in Sections 341.090 through 341.200 RSMo and, if not defined therein, their common and ordinary meaning. To the extent that the provisions of Sections 341.090 through 341.220 RSMo do not conflict with the provisions in this Ordinance, those sections are hereby adopted by reference as if fully set out herein.

This Code shall be construed, interpreted and enforced so as to secure its expressed intent which is to ensure public health, safety, welfare and by appropriate regulation of plumbing, sewer and cross-connection control systems installations, testing and maintenance. The purpose of this Code is to provide minimum standards to safeguard life and limb, health, property and

public welfare by regulating and controlling the design, erection, installation, alteration, repairs, relocation, replacement, addition to, use, maintenance and inspection of plumbing equipment and systems.

SECTION 102
APPLICABILITY

102.1 General. The provisions of this Code shall apply to all matters affecting or relating to structures and premises as set forth in Section 101. Where, in a specific case, different sections of this Code specify

different materials, methods of construction or other requirements, the most restrictive sections shall govern.

102.1.1 Conflicts Between Codes. When the requirements within the jurisdiction of this plumbing code, conflict with the requirements of any other ordinance, or with referenced standards, or with manufacturer's installation requirements, the more stringent requirement shall apply.

102.2 Existing installations. Except as otherwise provided for in this chapter, a provision in this Code shall not require the removal, alteration or abandonment of, nor prevent the continued utilization and maintenance of an existing plumbing system lawfully in existence at the time of adoption of this Code.

102.3 Maintenance. Plumbing systems, materials and appurtenances, both existing and new, and all parts thereof shall be maintained in proper operating condition in accordance with the Original design and in a safe and sanitary condition. All devices or safeguards which are required by this Code shall be maintained in compliance with the code edition under which installed. The owner or the owner's designated agent or the person collecting rent shall be responsible for maintenance of plumbing systems. To determine compliance with this provision, the code official shall have the authority to require any plumbing system to be reinspected.

102.4 Additions, alterations or repairs. Additions, alterations, renovations or repairs to any plumbing system shall conform to that required for a new plumbing system without requiring the existing plumbing system to comply with all the requirements of this Code. Additions, alterations or repairs shall not cause an existing plumbing system to become unsafe, unsanitary, hazardous or overloaded.

Installed fixtures, piping or plumbing equipment of any premises found to be in an unsatisfactory or hazardous condition shall be repaired, renovated, replaced or removed immediately subsequent to the issuance of a written notice of the unsanitary or hazardous condition by the Plumbing Inspection Section of the Division of Building and Inspection, or by the Health Commissioner.

Minor additions, alteration, renovations and repairs to existing plumbing systems shall meet the provisions for new construction, unless such work is done in the same manner and arrangement as was in the existing system, is not hazardous and is approved.

102.5 Change in occupancy. It shall be unlawful to make any change in the occupancy of any structure which will subject the structure to any special provision of this Code applicable to the new occupancy without approval of the code official. The code official shall certify that such structure meets the intent of the provisions of law governing building construction for the proposed new occupancy and that such change of occupancy does not result in any hazard to public health, safety or welfare.

102.6 Historic buildings. The provisions of this Code relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of building or structures shall not be mandatory for existing buildings or structures identified and classified by the state or City of Saint Louis as historic buildings when such buildings or structures are judged by the code official to be safe and in the public interest of health, safety and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation or moving of buildings.

102.7 Moved buildings. Except as determined by Section 102.2, plumbing systems that are a part of buildings or structures moved into or within the City of Saint Louis shall comply with the provisions of this Code for new installations. Before any structure that have been moved into or within the City of Saint Louis is occupied, the plumbing system shall be inspected and tested for safe operation and compliance with the requirements of this Code. This testing shall be performed by a licensed plumber.

Exception: Unaltered plumbing systems within manufactured units bearing certification of the Missouri Public Service Commission.

102.8 Requirements not covered by code. Any requirements necessary for the strength, stability or proper operation of an existing or proposed plumbing system, or for the safety of the occupants thereof, or for the public safety, health and general welfare, not specifically covered by this Code, shall be determined by the code official.

SECTION 103
VALIDITY

103.1 Partial invalidity. In the event that any part or provision of this Code is held to be illegal or void, this shall not have the effect of making void or illegal any or the other parts or provisions thereof, which are deter-

mined to be legal; and it shall be presumed that this Code would have been passed without such illegal or invalid parts or provisions.

103.2 Segregation of invalid provisions. Any invalid part of this Code shall be segregated from the remainder of the code by the court holding such part invalid, and the remainder shall remain effective.

103.3 Decisions involving existing structures. The invalidity of any provision in any section of this Code as applied to existing buildings and structures shall not be held to affect the validity of such section in its application to buildings and structures hereafter erected.

SECTION 104
SECTION OF PLUMBING REGULATIONS AND INSPECTIONS

104.1 General. There is hereby created the Section of Plumbing Regulations and Inspections within the Division of Building and Inspection which shall have control and enforce all codes, regulations and ordinances pertaining to plumbing and drainlaying installations and systems in accordance with this Code. The head of this section shall be known as the Plumbing Inspection Supervisor, who shall be appointed by the Building Commissioner. Throughout this Code, the Plumbing Inspection Supervisor, the Chief Mechanical Engineer and the Building Commissioner shall be referred to as the code official.

104.2 Plumbing inspection supervisor (Chief Plumbing Inspector). There shall be appointed by the Building Commissioner a Plumbing Inspection Supervisor (Chief Plumbing Inspector). The Plumbing Inspection Supervisor shall have served an apprentice training program or shall have a certificate of completion in plumbing technology from an accredited trade or technical institute. The Plumbing Inspection Supervisor shall also have ten (10) years' experience as a licensed plumber and possess the qualifications established by the Department of Personnel.

104.3 Plumbing inspectors. There shall be appointed by the code official a sufficient number of Plumbing Inspectors to adequately perform all inspection duties and enforce all ordinances pertaining to the Section of Plumbing Regulations and Inspections in accordance with subsequent sections of this Code and City of Saint Louis budgetary constraints. All plumbing inspectors shall have had at least five (5) years' experience as a licensed plumber and possess the qualifications set forth by the Department of Personnel.

104.3.1 Assistant to the supervisor. One such inspector shall assist the Plumbing Inspection Supervisor. The assistant shall assume the responsibilities of the Plumbing Inspection Supervisor in the Supervisor's absence or disability.

104.3.2 Restriction of employees. An official or employee connected with the Section of Plumbing Regulations and Inspections, except one whose only connection is that of a member of the Board of Examiners for Master Plumber, Drainlayer and Journeyman Plumbers, or a member of the Board of Examiners for Sprinkler System Contractors, or a member of the Committee of Plumbing Review shall not be engaged in or directly or indirectly be connected with the furnishing of labor, materials, equipment or appliances for the construction, alteration or maintenance of a building, or the preparation of construction documents thereof, unless that person is the owner of the building, or a first degree relative of the owner of the building, nor shall such code official or employee engage in any work that conflicts with official duties or with the interests of the department. As such, no code official or employee connected with the Section of Plumbing Regulations and Inspections shall hold an active master or journeyman plumbing or drainlaying license in any jurisdiction. All licenses will be put into the inactive status.

104.4 Relief from personal liability. The code official and employees charged with the enforcement of this Code, while acting for the City of Saint Louis, shall not thereby be rendered liable personally, and are hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act required or permitted in the discharge of official duties. Any suit instituted against any code official or employee because of an act performed by that person in the lawful discharge of duties and under the provisions of this Code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The code official or any employees shall not be liable for any costs or judgment in or arising from any action, suit or preceding that is instituted in pursuance of the provisions of this Code. Any code official or employee of the Division of Building and Inspection, Department of Public Safety, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

SECTION 105
DUTIES AND POWERS OF THE CODE OFFICIAL

105.1 General. The code official shall enforce all of the provisions of this Code and shall act on any question relative to the mode or manner of construction and the materials to be used in the erection, installation, alteration, repair, removal, maintenance or operation of all plumbing systems, devices, equipment and appliances, except as otherwise specifically provided for by statutory requirements or as provided for in Sections 105.2 through 105.7.

105.2 Applications and permits. It shall be the duty of the code official to examine all applications and construction documents of proposed plumbing and drainlaying, and if the same are in all respects found to be in conformity with the provisions of this Code, the code official shall approve them. The code official shall investigate all reported cases of improper plumbing, pipefitting and sprinkler fitting work or material, old or new, and of improper sanitation as to established principles of public health. The code official shall cause an inspection to be made of all water and sewer connections and approve all permits for excavations made for the purpose of making or repairing same. The code official shall cause the inspection of the plumbing and drain laying of all buildings, public and private, in the course of erection, alteration, reconstruction or repair and cause the inspection of existing plumbing as often as may be necessary in a manner and to the extent necessary to carry out the provisions of this Code regulating plumbing and drain laying.

Exception: Buildings, structures or premises owned and occupied by the United States of America or the State of Missouri.

105.3 Notices and orders. The code official shall issue all necessary notices or orders in writing to assure compliance with this Code. The notice to the person having responsibility for the building, structure or premises found by the code official to be dangerous or in violation of this code shall be directed to that person by name or names, and the name or names of the owner or owners of the building, structure or premises as indicated by the records of the Assessor's Office of the City of Saint Louis, and shall be served in any one of the following ways:

1. Deliver to owner - by causing said notice to be delivered to such owner, either in the City of Saint Louis or elsewhere.

2. Posting - by posting a copy of such notice upon the building or structure or premise and said notice to be affixed in such a manner that it cannot be removed and/or replaced if removed.

3. Mailing - by mailing such notice or copy thereof enclosed in a sealed envelope, postage prepaid, directed to such owner, either at the owner's place of business or residence address in the city or elsewhere.

4. Publication - by publication in a newspaper of general circulation in the City of Saint Louis or in "The City Journal", said notice to be deemed served twenty-four (24) hours after publication.

5. Electronic Notification - by utilizing electronic means such notice or copy thereof to such resident or building owner.

105.3.1 Emergency condemnation. Whenever the code official shall find any building, structure, premises or portion thereof no matter for what purpose used, to be in an unsafe or dangerous condition and that there is an actual and potential danger to the occupants or those in the proximity of any building, structure or premises which poses an immediate danger to public safety or welfare, the code official shall order the immediate evacuation of said building, structure or premises. All of the occupants so notified shall immediately vacate the building, structure, or premises and no person shall re-enter until authorized to do so by the code official. Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order by the code official, except such person(s) directed to perform work to remove a violation or unsafe condition shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone from reentering the building, structure or premises until such time that the Police Department shall have been notified by the Building Division that the same is in a safe condition. Any person who shall violate any provisions of this section shall, upon conviction thereof, be penalized as set forth in Section 25.04.030.

105.3.2 Authority to placard. The code official has the authority to post a placard in a conspicuous place on a building or premises where the plumbing system has been found to be unsafe or inadequate.

105.3.3 Placarded building. Placards shall remain on said building until the required repairs, replacements or improvements have been made and accepted by the code official, and it shall be unlawful to deface or willfully remove any such placard that has been posted on a building without first obtaining consent of the code official. It shall be unlawful for any person to reside in, use, rent lease or occupy such building for any purpose while so placarded and no person shall remove said placards without the consent of the code official.

105.4 Inspections. The code official shall make all of the required inspections, or the code official shall accept reports of inspection by approved agencies, design professionals or individuals, and all reports of said inspections shall be in writing and certified by a responsible officer of said approved agency or by the responsible individual. The code official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise subject to the approval of the appointing authority. The owner shall provide such special inspections as are required by the code official.

105.4.1 Dangerous, hazardous, unsanitary, or unapproved installations. The code official shall have the authority to seal out of service plumbing equipment, devices and appurtenances covered by the Building and Plumbing Codes when, in the code official's opinion, any of these items are in an unsafe, hazardous, or unsanitary condition, or if the installation was made without obtaining the necessary permit or permits, or if the installation violates the provisions of these codes.

105.4.2 Notice of sealing out of service. Before sealing any device out of service, the code official shall, except in cases of emergency, serve ten (10) calendar days written notice upon the building owner, occupant, or collector of rent as directed in Section 105.2.

105.4.3 Unlawful to remove seal. Any device sealed out of service by the code official shall be plainly marked with a sign or tag indicating such sealing, and any defacing or removal of the sign or tag, or any tempering with or removal of the seal without approval of the code official, or operation of the sealed unit shall constitute a violation of this Code. The penalty for violation of this section shall be as set forth in Section 25.04.030.

105.4.4 Utility disconnect. Whenever the code official determines that there is an eminent danger to public safety, the code official may request that the public utilities be disconnected to that structure or premises.

105.5 Identification. The code official shall carry proper identification when inspecting structures or premises in the performance of duties under this Code.

105.6 Rule making authority. The code official shall have authority as necessary in the interest of public health, safety, and general welfare, to adopt and promulgate rules and regulations to interpret and approve a variance to the code for that particular instance the provisions of this code to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this Code or of violating accepted engineering practice involving public safety.

105.6.1 Accepted engineering practice. In the absence of provisions not specifically contained in this Code or approved rules, the regulations, specifications and standards listed in Chapter 17 and Appendix I shall be deemed to represent accepted engineering practice in respect to the material, equipment, system or method of construction therein specified.

105.6.2 Suspensions and cancellations. The code official shall have the power and is directed to suspend for a definite time or to cancel any license granted hereunder, if, after notice and opportunity to be heard, the party named therein is found guilty by the Board of Examiners of violating rules and regulations established by the Section of Plumbing Regulation and Inspections and do all other acts necessary to carry out these provisions. The code official shall review all notices and licenses required to be issued by the Section of Plumbing Regulations and Inspections and keep a record of all transactions.

105.7 Department records. The code official shall keep official records of plumbing applications received, permits issued, licenses issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for three (3) years, except notices and orders which have been complied need not be kept.

Original or file copies, when subpoenaed, shall be electrostatic copies certified by the code official to be true and accurate copies of original documents. Original documents shall remain in the possession of the Sec-

tion of Plumbing Regulations and Inspections, unless filed with the Central File Section of the Division of Building and Inspection.

105.8 Right of entry. Whenever it is necessary to make an inspection to enforce the provisions of this Code, or whenever the code official has reasonable cause to believe that there exists in a building or upon any premises any condition or violation of this Code which makes the building or premises unsafe, unsanitary, dangerous or hazardous, the code official shall have the authority to enter the building or premises at all reasonable times to inspect or to perform the duties imposed upon the code official by this Code. If such building or premises is occupied, the code official shall present credentials to the occupant and request entry. If such building or premises is unoccupied, the code official shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. If entry is refused, the code official has recourse to every remedy provided by law to secure entry. When the code official has first obtained a proper inspection warrant or other remedy provided by law to secure entry, an owner or occupant or person having charge, care or control of the building or premises shall not fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the code official for the purpose of inspection and examination pursuant to this Code.

105.9 By whom work is performed. The code official shall see that all plumbing, pipefitting, sprinkler fitting, drain laying and sewer work is done in accordance with the provisions of this code and that the work is performed by a Master Plumber, Master Drain Layer, Master Mechanical Pipefitter, Master Sprinkler Fitter and/or Journeymen and Apprentices licensed within the City of St. Louis and employed by another who also employs a Master Plumber, Master Drain Layer, Master Mechanical Pipe Fitter and/or Master Sprinkler Fitter Contractor licensed within the City of Saint Louis.

License, Registration or Certification - Required.

1. Plumbing. Except as otherwise provided in this Code, no person shall engage in or perform the work of installing, altering or repairing any plumbing associated with a plumbing system. This includes initial installation of backflow prevention devices and assemblies appurtenant to a plumbing system, including the installation testing and repair of drainage waste and vent piping and hot and cold-water piping to laboratory equipment in hospitals, clinics, first-aid stations, dispensaries, and all elementary school, high schools, and college level schools including graduate level schools, and included in the work of installing, altering or repairing any plumbing associated with a plumbing system is residential dishwasher replacement, multipurpose fire sprinkler system, except minor repairs, and except work performed in accordance with Home Owner Permits issued under this Code, unless licensed as a Master Plumber, a Journeyman Plumber, or an Interim Journeyman Plumber under this Code or unless he/she shall be registered as a Plumber Apprentice or Experienced Plumber Apprentice under this Code and working under the direction of a licensed Master Plumber. In addition to those licenses authorized by the Mechanical Code, a Master Plumber, Journeyman Plumber, Interim Journeyman Plumber, Plumber Apprentice, or Experienced Plumber Apprentice under this Code and working under the direction of a licensed Master Plumber, may work on wet or dry standpipes under this Code, that are not part of an automatic Fire Sprinkler system and that do not have as a part of the standpipe system one or more sprinkler heads. A licensed Master, Journeyman, Interim Journeyman, Experienced Apprentice and an Apprentice Plumber may install fuel gas systems in one (1) and two (2) family dwellings under this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed as aforesaid. No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed as aforesaid.

No person shall hold himself/herself out as being available to perform such work unless he/she shall be a licensed Journeyman Plumber or licensed, insured, and bonded as a licensed Master Plumber.

2. Drainlaying. Except as otherwise provided in this Code, no person shall engage in or perform the work of installing the sanitary or storm building sewer, starting five (5') feet beyond the building foundation wall (end of building drain), or any work concerning the installation of sanitary or storm, trunk, main and lateral sewers, in public property recorded easements or private property unless said person is a Master Drainlayer or under the direct supervision of a Master

Drainlayer duly licensed pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed as aforesaid. No person shall engage in or perform the work of installing or repairing private sewage systems unless licensed to perform such work by the Missouri Department of Health and Senior Services (MoDHSS), and unless said person is a Master Drainlayer or under the direct supervision of a Master Drainlayer duly licensed pursuant to this Code. No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed as aforesaid.

a. Direct Supervision shall mean that the Master Drainlayer is directly responsible for the installation of the drainlaying work and shall supervise such installations or provide a competent person to be on site to supervise the work.

The actual installation of all piping, setting of grade, and competent person to supervise the work shall be employees of and on the direct payroll of the entity which has the assignment of the Master Drainlayers license, who holds the permit for the work. The person(s) who does the excavation, backfill, and/or hauling may be subcontractors, and not on the direct payroll as indicated above however, they shall be under the supervision of the Master Drainlayer or his representative.

Exception: In order to not void material warranties, persons who have Been trained by methods satisfactory to the manufacturer for this installation May do the installation of proprietary components. This does not relieve the manufacturer from providing training where practical to the employees of the Master Drainlayer. At all times the installation shall be supervised by the competent person employed by the Master Drainlayer and assisted by equivalent minimum number of personnel employed by the Master Drainlayer equal to the number of manufacturer personnel required.

No person shall hold themself out as being available to perform such work without being a licensed, insured, and bonded Master Drainlayer.

3. Cross-Connection Control Backflow Prevention Assembly or Device Testing And Repair. No person shall test, repair, undertake to test or repair or hold himself/herself as being available for the testing, or repair of any backflow prevention assembly or device unless he/she shall possess a Backflow Prevention Tester Certificate for the particular application involved pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be certified as aforesaid. No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be certified as aforesaid.

4. Process Piping Systems. Except as otherwise provided in this Code, no person shall install, test or repair backflow prevention assemblies or devices within or appurtenant to process drains, process drain facilities, process drainage systems or piping drains, drainage systems or facilities from mechanical manufacturing, industrial processing, refrigeration, heating, air conditioning or parts, materials, devices or appurtenances in connection therewith, drainage waste or vent piping specifically installed for laboratories in commercial, industrial, research, and manufacturing plants and like entities, the primary purpose of these installations being the development, improvement, research, or discovery of a product or products, unless he/she shall be a licensed Journeyman Pipefitter or a licensed Master Pipefitter pursuant to this Code.

No person shall test or repair backflow prevention assemblies or devices within or appurtenant to process drains, process drain facilities, process drainage systems or piping drains, drainage systems or facilities from mechanical manufacturing, industrial processing, refrigeration, heating, air conditioning or parts, materials, devices or appurtenances in connection therewith unless he/she shall be certified as a Backflow Prevention Tester pursuant to this Code. No person shall hold himself/herself out as being available to perform such work unless he/she shall be a licensed Journeyman Pipefitter or registered, insured, and bonded as a licensed Master Pipefitter and possess the appropriate Backflow Prevention Tester Certificate pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed, certified, or registered as aforesaid. No

partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed, certified or registered as aforesaid.

5. Fire Suppression Systems. Except as otherwise provided in this Code, no person shall install, undertake to install or hold himself/herself out as being available for the installation of backflow prevention assemblies or devices appurtenant to fire suppression systems, unless he/she shall be a licensed Journeyman Sprinkler fitter or a Licensed, Insured, and Bonded Master Sprinkler Fitter pursuant to this Code. No person shall test or repair backflow prevention assemblies or devices appurtenant to fire suppression systems, unless he/she shall be Certified as a Backflow Prevention Tester pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed, certified, or registered as aforesaid. No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed, certified or registered as aforesaid.

6. Irrigation Systems. Except as otherwise provided in this Code, no person shall install, test or repair, undertake to install, test or repair or hold himself/herself out as being available for the testing or repair of backflow prevention assemblies or devices appurtenant to irrigation systems unless he/she shall be a Licensed, Insured, and Bonded Master Plumber or a Licensed Journeyman Plumber when in the employ of a Master Plumber and possess the appropriate Backflow Prevention Tester Certificate pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed, certified, or registered as aforesaid.

No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed, certified or registered as aforesaid.

7. Residential Hydronic Heat Systems. Except as otherwise provided in this Code, no person shall install, test or repair, undertake to install, test or repair or hold himself/herself out as being available for the installation, testing or repair of backflow prevention assemblies or devices appurtenant to residential heating systems of a size not exceeding four hundred thousand (400,000) BTUH heating, and steam generators intended for the production of steam for single person, single family residential steam saunas, unless he/she shall be a Licensed, Insured, and Bonded Master Pipefitter or Master Plumber or a Licensed Journeyman Pipefitter or Journeyman Plumber when in the employ of a Master Pipefitter or Master Plumber and possess the appropriate Backflow Prevention Tester Certificate pursuant to this Code. No person shall hold herself/himself out as being available to perform any such work unless she/he shall be licensed, certified or registered as aforesaid. No partnership, corporation or other legal entity, or person conducting business under a fictitious name shall hold out such entity as being available to perform any such work in any advertising medium or publication unless a principal or employee of such entity shall be licensed, certified or registered as aforesaid.

8. Hardship Clause. In the event of a loss of a Master Licensee to a company licensed in St. Louis City, through no fault of that company, a licensed Journeyman of the trade of the absent Master Licensee; or in the event of the loss of a Master Drainlayer to a company through no fault of that company, a person who would otherwise be eligible to qualify as a Master Drainlayer in the trade of the absent Master Drainlayer; and who shall be a full-time employee of that company, shall be designated as an Interim Master after meeting all bonding and insurance requirements. That company may operate under an Interim Master, who will have the same rights, responsibilities and standing of a Master in that trade, for a period of not more than one (1) year from the date of the hardship. That company must submit to the person responsible for maintaining license data, the standard submittals any other Master would submit to activate a Master License. The Acting Secretary of the Board of Examiners shall determine judgment of fault.

If anyone has information and wishes to appeal the existence of a hardship license that person may appeal to the Board of Plumbing Examiners who shall hold an emergency hearing at the next regularly scheduled meeting of the Board no sooner than (7) calendar days and no later than thirty-eight (38) calendar days following

the date appeal is received by the Board Secretary. The appeal must state the reasons for the appeal and must be accompanied by a fee of one hundred ($100.00) dollars. The decision of the Board involving a hardship clause is appealable in the same manner as other decisions of the Board. Additional appeals may be made pursuant to the procedures of the City of St. Louis.

Exception: Buildings, structures or premises owned and occupied by the United States of America or the State of Missouri.

9. Residential Fire Sprinkler Systems. Fire protection for one (1) and two (2) family dwellings that is part of a system as follows:

A) A multipurpose fire sprinkler system that provides potable domestic water to both fire sprinklers and all plumbing fixtures shall be permitted by this Code and installed by a licensed Master Plumber or Journeyman Plumber certified by the Board of Plumbing Examiners for this installation.

B) A stand-alone sprinkler system, separate and independent from the water distribution system, shall be permitted and installed as required by the Mechanical Code. On a combination main, the connection to the potable water service and/or distribution system shall be permitted by this Code by a licensed Master Plumber whom shall leave a tee and valve for connection by Master Sprinkler Fitter. The dedicated fire line connection to the potable water main shall be permitted by this Code by a licensed Master Sprinkler Fitter.

SECTION 106
APPROVAL

106.1 Modifications. Whenever there are practical difficulties involved in carrying out the provisions of this Code, the code official shall have the authority to grant modifications for individual cases, provided the code official shall first find that the special individual reason makes the strict letter of this Code impractical and the modification is in compliance with the intent and purpose of this Code and that such modification does not lessen health, life and fire safety requirements.

106.1.1 Records. The application for modification and the final decision of the code official shall be in writing and shall be officially recorded with the application for the permit in the records of the Division of Building and Inspection.

106.2 Used material, equipment, and devices. Materials, equipment, and devices shall not be reused unless such elements have been reconditioned, tested and placed in good and proper working condition and approved by the code official.

106.3 Alternative materials, methods, and equipment. The provisions of this Code are not intended to prevent the installation of any material or equipment or to prohibit any method of construction not specifically prescribed by this Code, provided that any such alternative has been approved. An alternative material, equipment or method of construction shall be approved where the Committee of Plumbing Review and the code official finds that the proposed design is satisfactory and complies with the intent of the provisions of this Code, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this Code for quality, strength, effectiveness, fire resistance, durability and safety.

106.3.1 Research and investigations. The Committee of Plumbing Review and the code official shall require that a nationally accredited listing agency approve the proposed use of any material or assembly, and if it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the Committee of Plumbing Review and the code official shall approve its use subject to the requirements of this Code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant or owner.

106.3.2 Research reports. Supporting data, when required by the Committee of Plumbing Review and the code official to assist in the approval of all materials or assemblies not specifically provided for in this Code, shall consist of duly authenticated research reports from approved sources.

106.4 Required testing. Whenever there is insufficient evidence of compliance with the provisions of this Code, or evidence that a material or method does not conform to the requirements of this Code, the Committee of Plumbing Review and the code official shall require that sufficient technical data and/or test data be submitted to substantiate the proposed use of any material, equipment, assembly or method, and if it is determined that the evidence submitted by an approved agency is satisfactory proof of performance for the use intended, the Committee of Plumbing Review and the code official shall approve its use subject to the requirements of this Code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant.

106.4.1 Test methods. Test methods shall be as specified in this Code or by other recognized test standards. In the absence of recognized and accepted test methods, the code official shall approve the testing procedure.

106.4.2 Testing agency. All tests shall be performed by an approved independent testing agency.

106.4.3 Test reports. Reports of test shall be retained by the code official for a period required for the retention of public records.

106.5 Alternative engineered design. The design, documentation, inspection, testing and approval of an alternative engineered design plumbing system shall comply with sections 106.6.1 through 106.6.6.

106.5.1 Design criteria. An alternative engineered design shall conform to the intent of the provisions of this Code, and shall provide an equivalent level of quality, strength, effectiveness, fire resistance, durability and safety. Material, equipment or components shall be designed and installed in accordance with the manufacturer's installation instructions.

106.5.2 Submittal. The registered design professional shall indicate on the permit application that the plumbing system is an alternative engineered design. The permit and permanent permit records shall indicate that an alternative engineered design was part of the approved installation.

106.5.3 Technical data. The registered design professional shall submit sufficient technical data to substantiate the proposed alternative engineered design and to prove that the performance meets the intent of the code.

106.5.4 Construction documents. The registered design professional shall submit to the Committee of Plumbing Review and the code official two complete sets of sealed, signed and dated construction documents for the alternative engineered design. The construction documents shall include floor plans and a riser diagram of the work. When appropriate, the construction documents shall indicate the direction of flow, all pipe sizes, grade of horizontal piping, loading and location of fixtures and appliances.

106.5.5 Design approval. Where the Committee of Plumbing Review and the code official determine that the alternative engineered design conforms to the intent of this Code, the plumbing system shall be approved. If the alternative engineered system is not approved, the code official shall notify the registered design professional in writing, stating the reasons.

106.5.6 Inspection and test. The alternative engineered design shall be tested and inspected in accordance with the requirements of Section 108 and 301.2. If the alternative engineered design does not pass the test and inspection to the satisfaction of the code official, the system must be modified, re-tested and re-inspected until testing and inspection of the alternative engineered system is shown to meet the intent of the provisions of this Code to the satisfaction of the code official.

SECTION 107
PERMITS

107.1 When required. Any owner, lessee, authorized agent or contractor who desires to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure or premises, or to erect, install, enlarge, alter, repair, remove, convert or replace any plumbing system and/or drainlaying work, the installation of which is regulated by this Code, or to cause any work to be done, shall engage a licensed plumbing contractor and/or licensed drainlaying contractor who shall first make application to the code official and obtain the required permit for the work. All work shall be done by the person or corporation in whose name the permit or permits required by this section are issued. Any person who shall fail to comply with or who shall violate any of the provisions of this section shall be subject to the penalty provisions of Section 25.04.030.

107.1.1 Permits Required.

1. Except as otherwise specifically provided in this Code, a permit must be obtained prior to any person performing the following work:

(A) Any plumbing, drainlaying, or process drainage systems, including industrial waste sewers to site pretreatment, (with the exception of minor repairs, as defined in this Code), in, upon, or about any building or premise, whether private or public and whether any such work has been ordered by the Code Official, or any other authorized official;

(B) Any connection to any sewer.

(C) The installation or replacement or permanent removal of any Backflow Prevention Device or assembly.

(D) The connection of any dedicated fire suppression water main to any potable water main.

Exception: No permits shall be required for storm or sanitary sewer accepted for maintenance by Metropolitan St. Louis Sewer District, municipal street department or City highway department.

107.2 Permits not required. Permits shall not be required for any of the following:

1. The stopping of leaks in drains, water, soil, waste or vent pipe; provided, however, that if any concealed trap, drainpipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a permit shall be obtained and inspection made as provided in this Code.

2. The cleaning of stoppages or the repairing of leaks in pipes, valves or fixtures, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures.

3. Minor Repairs as used in this section shall mean repairs to traps or cocks, opening waste or supply pipes, traps or drains or frozen pipes. Minor repairs shall not include the doing of any work where connection to soil pipes, supply pipes, waste pipes or vent pipes are disturbed or inside leader pipes are used; nor shall it include the setting or replacing of fixtures.

4. Temporary plumbing installations for demonstration purposes which are not connected to either the public water supply or the public sewer system. Exemption from the permit requirements of this Code shall not be deemed to grant authorization for work to be done in violation of the provisions of this Code or other laws or ordinances of the City of Saint Louis.

107.3 Application for permit. Each application for a permit, with the required fees, shall be filed with the code official in such written form as the code official prescribes and shall be accompanied by an adequate written description of the proposed plumbing and/or drainlaying work and its location.

107.4 By whom application is made. The application for permit shall be made by the license holder responsible for the proposed installation of all or part of any plumbing system and/or drainlaying system. The applicant shall meet all qualifications established by rules promulgated with this Code or by ordinance, resolution, or statute. The full names, addresses and telephone numbers of the owner, lessee, and the applicant shall be stated in the application.

107.5 Description of work. The applicant shall list the number of fixtures of each type to be installed, the location of the work, and the use and occupancy of the building in which the work is to be performed.

107.6 Construction documents. The code official is authorized to require the submission and approval of a set of construction documents showing the nature and extent of the proposed work before a permit is issued. If, in the course of the work, it is found necessary to make any change from the approved construction documents on which a permit has been issued, amended construction documents shall be submitted, and if approved, a supplementary permit shall be issued, after payment of any additional fees, to cover the change after the same conditions required to secure the original permit have been satisfied. The code official is permitted to waive the requirements for filing construction documents where the work involved is of a minor nature.

When the quality of the materials is essential for conformity to this Code, specific information shall be given to establish such quality, and this Code shall not be cited, or the term "legal" or its equivalent used as a substitute for specific information. A plumbing hold or denial shall be placed on construction documents that are incomplete or are not drawn in compliance with this Code.

When inspection by the Section of Plumbing Regulations and Inspection reveals that work is not being performed in compliance with this Code, the code official shall be authorized to require the submission and approval of construction documents if these documents have not been submitted and approved prior to the issue of the plumbing permit.

The code official is authorized to require the submission of specific information in order to determine compliance with this Code.

All construction documents prepared by a registered design professional shall bear the original seal, date, and signature in ink of that person. Where applicable, construction documents shall indicate how required structural and fire resistance rating integrity will be maintained, and where penetrations will be made for plumbing systems.

107.6.1 Types of construction documents. Construction documents, where required by the code official, shall include a floor plan and a riser diagram showing the work. Such documents shall show the direction of flow, pipe size, grade of horizontal piping, elevations, drainage fixture unit loads of both stacks and drains in the drain, waste and vent systems, and the supply fixture unit load for the water system and any branch supplies which serve more than one plumbing fixture, appliance or hose outlet.

107.6.2 Requirements for plumbing construction documents. Plumbing construction documents shall be avail-

able for review at the job site on every project requiring a plumbing permit except construction or renovation of:

1. Residential structures, four families or less;

2. Structures with less than twenty (20) plumbing fixtures and less than ten thousand (10,000) square feet of roof area.

107.6.3 Construction document content. Plumbing construction documents submitted for review shall contain the following:

1. A plot plan drawn to scale showing sewer and water services;

2. Floor plans and roof plan;

3. Schematic stack/vent diagram indicating fixture units connected to each stack at each level, fixture unit totals carried by each stack, and totals collected by the under-floor drains (groundwork);

4. Pipe sizes for all piping covered above;

5. Flow line elevations for all under floor piping and outside piping; also, the percent of slope on which pipe sizing is based. Depth of footings and sleeves shall be indicated. Profiles are preferred;

6. Schematic roof leader diagram, showing each roof drain, its collection area, and the leader it connects to;

7. Total roof area connected to each roof leader, total roof areas carried by connecting storm drains, and the combined load carried by the main house sewer;

NOTE: City of Saint Louis code uses six (6) inches per hour rainfall;

8. Details for pipe bracing and supports, bath trap access, size of interceptors, clean out locations, expansion joints, manholes, house traps, sump pump settings, garage traps, stack flashing, back water protection, and sub-soil drains;

9. Schematic supply riser diagrams showing total supply fixture units connected at each level, the total carried by each riser, and the total supply fixture units carried by supply headers and water service;

10. Pipe sizes for items covered above;

11. Location of pressure regulators to restrict pressure on fixtures to less than eighty (80) psi (where house pumps are used);

12. Details for backflow protection at special equipment and fire suppression systems, water heater relief valves, safe pans, hot water circulation, system and riser valves, pipe supports and bracing, and water metering arrangements.

13. Plans for new plumbing systems or alterations to existing plumbing systems shall be accompanied by a diagram showing the relative elevation of the lowest fixture, elevation of the next upstream manhole cover and flow line, and the next downstream manhole cover and flow line and the top of the public sewer referred to the established datum of Metropolitan St. Louis Sewer District or other appropriate sewer district when such public sewer is available. The plans shall show the size, number, location, and potential date of availability of all new sewer connections.

14. Requirements for plans may be waived by the Code Official, for commercial plumbing installation(s) and for strip stores with twenty (20) fixtures or less, and for any plumbing installation for a single-family dwelling with twenty-five (25) fixtures or less, and/or when the work is of a minor nature. However, plumbing and sewer plans and specifications shall be submitted where required by the Code Official.

15. Details of Plumbing work in 1 & 2 Family dwellings, and details of Plumbing work in a commercial plumbing installation and for strip stores with twenty (20) fixtures, or less may be submitted as shop drawings prepared by a Master Plumber. Such shop drawings shall be signed by the Master Plumber and bear his St. Louis City License number.

16. Commercial buildings housing beauty, medical facilities or restaurants shall be prepared by the appropriate registered design professional consistent with the professional registration laws of the State of Missouri and shall bear an original embossed or wet ink seal, the date and original signature of the registered design professional.

Exception: Addition of three (3) or less, fixtures or equipment; in an existing beauty/hair/nail/spa facility, medical facilities or restaurants, shop drawings may be signed by the Master Plumber and bear his St. Louis City License Number if permitted by the Code Official.

107.6.4 Drain-waste-vent pipe (DWV). Specifications for DWV pipe materials, supply pipe materials, valves, pumps, fixtures, and backflow prevention devices shall be included on the plumbing construction documents or attached thereto.

107.6.5 Site plan. There shall also be filed a site plan showing the location of water service and sewer connections with respect to any building in which a plumbing system is to be installed. Vent stack termina-

tions shall be shown with respect to building ventilation openings which could allow introduction of sewer gases into the building or any adjacent building.

107.6.6 Seismic installations. Construction documents for installations which must meet the seismic requirements of the building code shall show the details of all pertinent anchorage and bracing and shall bear the original seal, date and signature in ink of a registered design professional licensed to practice in the State of Missouri.

107.6.7 Engineering details. The code official shall require adequate details of plumbing work, including computations and other technical data, to be filed. The plumbing drawings submitted for a permit shall be sealed, dated and signed by a registered professional engineer with current Missouri registration, or submitted by a Licensed Plumbing Contractor with their license number and notarized signature.

107.7 Amendments to application. Subject to the time limitations of Section 107.8, amendments to the construction documents, application or other records accompanying the same shall be filed at any time before completion of the work for which the permit is sought or issued. Such amendments shall be deemed part of the original application and shall be filed in the same manner as the original.

107.8 Time limit of application. An application for a permit for any proposed work shall be deemed to have been abandoned six (6) months after the date of filing, unless such application has been diligently prosecuted, or a permit shall have been issued. The code official shall grant one or more extensions of time for additional periods not exceeding one hundred eighty (180) days if there is reasonable cause.

107.9 Previous approvals. Except for unsafe plumbing systems, this Code shall not require changes in the construction documents or plumbing work for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the installation of which shall have been actively prosecuted within ninety (90) days after the effective date of this Code and completed with dispatch.

107.10 Permit issuance. The application, construction documents and other data filed by an applicant for permit shall be reviewed by the code official. If the code official finds that the proposed work conforms to the requirements of this Code and all laws and ordinances applicable thereto, and that the fees specified in Section 107.11 have been paid, a permit shall be issued to the applicant. A plumbing permit shall not be transferable. If the application or the construction documents do not conform to the requirements of all pertinent ordinances of the City of Saint Louis, the code official shall reject such application in writing, stating the reasons therefore.

107.10.1 Approved construction documents. When the code official issues a permit where construction documents are required, such approved construction documents shall not be changed, modified or altered without authorization from the design professional and the code official. Work shall be done in accordance with the approved construction documents.

107.10.2 Approval in part. The code official is authorized to issue a permit for the installation of a part of a plumbing system before the whole system has been submitted or approved, provided adequate information and detailed statements have been filed complying with all the pertinent requirements of this Code. The holder of such permit shall proceed at their own risk without assurance that the permit for the entire plumbing system will be granted.

107.10.3 Validity. The issuance of a permit or approval of construction documents shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this Code or of other ordinances of the City of Saint Louis. A permit presuming to give authority to violate or cancel the provisions of this Code shall be invalid. The issuance of a permit based upon construction documents and other data shall not prevent the code official from thereafter requiring the correction of errors in said construction documents and other data or from preventing building operations from being carried on there under when in violation of this Code or of other ordinances of the City of Saint Louis.

107.10.4 Expiration. Every permit issued by the code official under the provisions of this Code shall expire by limitation and become null and void if the work authorized by such permit is not commenced within one hundred eighty (180) days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of one hundred eighty (180) days. Before such work recommences, a new permit shall be first obtained, and a new fee paid.

107.10.5 Extensions. Any permittee holding an unexpired permit shall have the right to apply for an

extension of the time within which the permittee will commence work under that permit when work is unable to be commenced within the time required by this section for good and satisfactory reasons. The code official may grant one or more extensions of time for additional periods if there is reasonable cause, the total of which shall not exceed one hundred eighty (180) days.

107.10.6 Suspension or revocation of permit. The code official shall suspend or revoke a permit or approval issued under the provisions of this Code in case of any false statement or misrepresentation of fact in the application or on the construction documents upon which the permit or approval was based. A permit shall also be considered for revocation under the following provisions:

1. The owner of the property or the contractor shall request cancellation in writing stating the reasons for the request for cancellation. No refund of fees shall be made.

2. The code official may revoke the permit for fraud.

3. The code official may revoke the permit for non-compliance with the code.

4. The code official may revoke the permit for failure to pay the prescribed fees.

5. A permit may be revoked if payment is returned for insufficient funds.

Before a permit is considered for revocation prior to the completion of all work, the permit holder shall request an inspection of the work that has been completed. Upon inspection if the work complies with the code and is done in a workmanlike manner, the code official shall so indicate in writing to the person requesting revocation.

107.10.7 Work not in compliance. Should the plumbing contractor install work that is not in compliance with the plumbing, fire or building code, the contractor shall be directed by the code official to make necessary corrections to assure code compliance and no other permits shall be issued to said contractor until such work is corrected and approved by the code official.

107.10.8 Retention of construction documents. One (1) set of construction documents shall be retained by the code official until final approval of the work covered therein. One (1) set of construction documents shall be returned to the applicant and said set shall be kept at the site of the building or work at all times during which the work authorized thereby is in progress.

107.10.9 Posting of permit. A true copy of the permit shall be kept on the site of operations, open to public inspection during the entire time of prosecution of the work and until the completion of the same.

107.11 Fees. A permit shall not be issued until the fees prescribed in Table 107.11.3 have been paid, nor shall an amendment to a permit necessitating an additional fee because of the additional work involved be released until the additional fee has been paid. Fees for the inspections herein prescribed shall be paid to and collected by the City of Saint Louis. A permit may be revoked if payment is returned for insufficient funds.

107.11.1 Work commencing before permit issuance. In case any work for which a permit required by this Code is started or proceeded with prior to the permit being issued, the total normal fees applicable shall be increased by the amount as set forth in Table 107.11.1. The payment of said surcharge shall not relieve any persons from fully complying with the requirements of this Code for performance or execution of the work, nor from other penalties prescribed by law.

TABLE 107.11.1
SCHEDULE FOR SURCHARGE

PERMIT FEE	SURCHARGE
$ 0 TO $ 50	$ 35.00
$ 51 TO $200	$ 95.00
$ 201 TO $500	$245.00
$ 501 TO $2,000	$365.00
$ 2,001 TO $ 10,000	$485.00
OVER $ 10,000	1005.00

107.11.2 Inspection fees. It shall be the duty of the code official to cause the following inspections to be made as required by this Code. An inspection is to be made of each tap, water connection or extension, each sewer extension, and for repairs of water service pipe, or of sewer pipe, whether on a public or private street, alley, thoroughfare, or premises. Inspection shall also be made after completion of all work and be known as a finish inspection. Mechanical pipefitting and sprinkler fitting installations shall also be inspected.

107.11.3 Fee schedule. Fees for new construction or alteration of plumbing systems and inspections thereof shall be paid to and collected by the City of Saint Louis as indicated in Table 107.11.3.

TABLE 107.11.3
PLUMBING FEES

TYPE FEE	SURCHARGE
Application	$30.00
Tap, water connection or extension, each	$25.00
Sewer extension, connection or repair, each	$25.00
Irrigation System Zones (does not include backflow device), each	$25.00
Fixtures, each (floor drain, sump, water heater, reduced pressure backflow device or double gate/ double check valve, roof drain or trapped outlet)	$10.00
Test of reduced pressure backflow device or double gate/double check valve	$40.00
Late fee for all backflow tests not performed within 30 days of anniversary date, each	$30.00
Rough inspection, each	$25.00
Finish inspection, each	$25.00
Re-inspection, each	$30.00
Special inspection, each	$45.00

One rough inspection and one finish inspection for every 20 fixtures or fraction thereof; one additional rough inspection and one additional finish inspection for every additional fixture or fraction thereof.

107.11.4 Re-inspections. Re-inspections of plumbing installations and systems on any premises shall be made when deemed necessary by the code official. Where a re-inspection is required to be made due to faulty workmanship or work not completed at the time of a requested inspection.

Fees for a re-inspection fee shall be as indicated in Table 107.11.3.

107.11.5 Fees for abandoned work or revoked permit. Fees shall not be waived or refunded for any plumbing permit that has been abandoned, canceled, or revoked.

107.11.6 Special inspections. A special inspection may be requested by the owner or occupant of a building or premises. Fees for special inspections shall be as indicated in Table 107.11.3.

SECTION 108
INSPECTIONS AND TESTING

108.1 Required inspections and testing. The code official upon notification from the permit holder or the permit holder's agent shall make the following inspections and other such inspections as necessary and shall either release that portion of the construction or shall notify the permit holder or agent of any violation which must be corrected. The holder of the permit shall be responsible for the scheduling of such inspections. All inspections are visual inspections.

The contractor shall be responsible for repairing defects hidden from the inspector.

1. Underground inspections shall be made after trenches or ditches are excavated and bedded, piping installed, and before any backfill is put in place. When excavated soil contains rocks, broken concrete, frozen chunks and other rubble which would damage, break the piping or cause corrosive action, clean backfill shall be on the job site next to trenches or ditches.

2. Rough-in inspection shall be made after the roof, framing, fire-blocking, fire stopping, draft-stopping and bracing is in place and all sanitary, storm and water distribution piping is roughed-in, and prior to the installation of wall and ceiling membranes. Any portion of the plumbing system covered by the permit which is intended to be concealed by any permanent portion of the structure shall not be concealed until inspected. The code official shall have the authority to require any concealment to be removed. Failure to comply with this order of the code official may result in condemnation of the structure or any part thereof and prohibition of occupancy. Furthermore, the plumbing contractor shall not be issued any other permits until such work is properly inspected and approved by the code official.

3. Final inspection shall be made after the building is complete, all plumbing fixtures are in place and properly connected, and the structure is ready for occupancy. All violations of any code, any approved construction document or the plumbing permit shall be noted, and the holder of the plumbing permit shall be notified in writing of the discrepancies. All violations shall be abated before final approval. If the plumbing contractor refuses to abate any violation, the contractor shall not be issued any other permits until such violation is remedied, properly inspected and approved by the code official.

4. Exposure of Work. All new, altered, extended or replaced plumbing and drainlaying shall be left uncovered and unconcealed until it has been tested and approved. Where such work has been covered or con-

cealed before it is tested and approved, the Code Official may require that it be exposed for testing and approval.

108.1.1 Approved inspection agencies. The code official shall accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualification and reliability.

108.1.2 Evaluation and follow-up inspection services. Prior to the approval of a closed, prefabricated plumbing system and the issuance of a plumbing permit, the code official shall require the submittal of an evaluation report on each prefabricated plumbing system, indicating the complete details of the plumbing system, including a description of the system and its components, the basis upon which the plumbing system is being evaluated, test results and similar information, and other data as necessary to the code official to determine conformance to this Code.

108.1.2.1 Evaluation service. The code official shall designate the evaluation service of an approved agency as the evaluation agency and review such agency's evaluation report for adequacy and conformance to this Code.

108.1.2.2 Follow-up inspection. Except where ready access is provided to plumbing systems, service equipment and accessories for complete inspection at the site without disassembly or dismantling, the code official shall conduct the in-plant inspections as frequently as necessary to assure conformance to the approved evaluation report or shall designate an independent approved inspection agency to conduct such inspections. The inspection agency shall furnish the code official with the follow-up inspection manual and a report of inspections upon request, and the plumbing system shall have an identifying label permanently affixed to the system indicating that factory inspections have been performed.

108.1.2.3 Test and inspection records. All required test and inspection records shall be available to the code official at all times during the fabrication of the plumbing system and the erection of the building: or such records as the code official designates shall be filed.

108.2 Special inspections. Special inspections of alternative engineered design plumbing systems shall be conducted in accordance with Sections 108.2.1 and 108.2.2.

108.2.1 Periodic inspection. The registered design professional or designated inspector shall periodically inspect and observe the alternative engineered design to determine that the installation is in accordance with the approved plans. All discrepancies shall be brought to the immediate attention of the plumbing contractor for correction. Records shall be kept of all inspections.

108.2.2 Written report. The registered design professional shall submit a final report in writing to the code official upon completion of the installation, certifying the alternative engineered design conforms to the approved construction documents. A notice of approval for the plumbing system shall not be issued until a written certification has been submitted.

108.3 Testing. Plumbing systems shall be tested as required in this Code and in accordance with Sections 108.3.1 through 108.3.3. Tests shall be made by the permit holder and observed by the code official.

108.3.1 New, altered, extended or repaired systems. New plumbing systems and parts of existing systems, which have been altered, extended or repaired shall be tested as prescribed herein to disclose leaks and defects, except that testing is not required in the following cases:

1. In any case which does not include addition to, replacement, alteration or relocation of any water supply, drainage or vent piping.

2. In any case where plumbing equipment is set up temporarily for exhibition purposes and is not connected to the public water supply or the public sewer system.

108.3.2 Equipment, material and labor for tests. All equipment, material and labor required for testing a plumbing system or part thereof shall be furnished by the permit holder.

108.3.3 Re-inspection and testing. Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as to achieve compliance with this Code. The work or installation shall then be resubmitted to the code official for inspection and testing.

108.4 Contractor's responsibilities. It shall be the duty of every contractor who enters into contracts for the installation or repair of plumbing systems for which a permit is required to comply with adopted federal, state and local rules and regulations concerning certification and licensing.

108.5 Coordination of inspections. Whenever in the enforcement of this Code or another code or ordinance, the responsibility of more than one code official is involved, it shall be the duty of the code officials involved to coordinate their inspections and administrative orders as fully as practicable so that the owners

and occupants of the structure shall not be subjected to visits by numerous inspectors or multiple or conflicting orders. Whenever an inspector from any agency or department observes an apparent or actual violation of some provision of some law, ordinance, or code not within the inspector's authority to enforce, the inspector shall report the findings to the code official having jurisdiction.

108.5.1 Legal compliance. All legal assistance necessary to effect compliance of the plumbing systems of such premises with this section shall be supplied to the code official by the City Counselor and other City of Saint Louis agencies. The Fire and Police Departments of the City of Saint Louis shall, upon request, assist the code official in the enforcement of this Code.

108.6 Approval. After the prescribed tests and inspections indicate that the work complies in all respects with this Code, a notice of approval shall be issued by the code official.

108.7 Temporary connection. The code official shall have the authority to authorize the temporary connection of the building or system to the utility source for the purpose of testing plumbing systems or for a temporary certificate of occupancy.

108.8 Plumbing inspection certificate. The Section of Plumbing Regulations and Inspection, upon completion of repair and remodeling work, as per permit issued, shall, upon request of the property owner, the occupant or the licensed plumbing contractor, furnish a plumbing inspection certificate to the property owner or occupant who has authorized the work to be performed. The plumbing inspection certificate shall state the address of where the work was performed, name and license number of the licensed plumbing contractor performing the work, permit number, approved by inspector's signature, the inspector's identification number, date and time of inspection. Certificates are filled out by plumbing inspectors within ninety (90) days of the final inspection.

108.9 Inspection Placard. Work requiring a permit shall not commence until the permittee or his agent posts a ten inch by twelve-inch board affixed to a post which is firmly imbedded in the ground, containing the lot and block number, and affixes the job inspection placard for recording inspections. Failure to maintain this inspection placard and identification board will not relieve the permittee of responsibility as provided by the Building Code. When work has progressed to a point of having windows, or when the job is an alteration or addition, the placard shall be attached to the available glass in view for recording the balance of inspections required by the Building Code. Absence of inspection placard will result in imposition of the charge for an additional inspection specified in Table 107.11.3, Plumbing Fees as amended. Upon payment of the fee for an additional inspection, an extra inspection placard will be issued to the permittee.

108.9.1 Identification Requirements. The licensed Master, Journeyman, or registered Apprentice performing the work under this Code shall write his license number on the Identification Card or Identification Sticker before starting work on the job. The Identification Card or Identification Sticker shall have the written permit number for the work in the proper place, before starting the work The Identification Card shall be posted in the same manner as, and in the vicinity of the job inspection placard.

SECTION 109
VIOLATIONS

109.1 Unlawful acts. It shall be unlawful for any person, firm or corporation to erect, construct, alter, repair, remove demolish or utilize any plumbing system, or cause same to be done, in conflict with or in violation with any of the provisions of this Code. All work shall be conducted, installed and completed in a workmanlike and approved manner so as to secure the results intended by this Code.

109.2 Notice of violation. The code official shall serve a written notice of violation or order, as heretofore described in Section 105.3, to the person, firm, or corporation responsible for the erection, installation, alteration, extension, repair, removal, demolition or operation of plumbing equipment or systems in violation of the provisions of this Code, or in violation of a detailed statement, or the approved construction documents there under, or in violation of a permit issued under the provisions of this Code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Failure to comply with the written order of the code official may result in revocation of the bond and/or license of that person, firm, or corporation. Failure to comply with the order of the code official shall result in the denial to issue any additional permits in that person's, firm's, or corporation's name.

109.2.1 Written notice of violation. If the building inspection, re-inspection, or test reveals failure of any

new installation, addition, alteration, maintenance, or replacement to comply with the provisions of this Code, the installation shall be declared unlawful by the code official, and a written notice of violation shall be given or mailed to either the responsible individual, person, firm or corporation to whom the permit was issued, or to the legally authorized representative of the permit holder.

109.3 Prosecution of violation. If the notice of violation is not complied within the time stated in the Notice of Violation, but no longer than thirty (30) days, the code official shall request the legal counsel of the City of Saint Louis to institute the appropriate proceedings at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the structure in violation of the provisions of this Code or of the order or direction made pursuant thereto. The time for compliance may be extended by the code official, upon written request if there are extenuating circumstances.

109.4 Violation penalties. Any person, partnership or corporation who shall violate a provision of this Code or shall fail to comply with any of the requirements thereof or who shall erect, construct, alter or repair plumbing equipment or systems in violation of the approved construction documents or directive of the code official, or of a permit or license issued under the provisions of this Code, shall, upon conviction thereof, be penalized as set forth in Section 25.04.030.

109.5 Stop work order. Upon notice from the code official that plumbing work is being done contrary to the provisions of this Code or in a dangerous or unsafe manner, or without permit, or by unlicensed individuals, such work shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. The stop work order shall state the conditions under which work is authorized to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work. Any person who shall continue any work on the system after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe conditions, shall be subject to immediate arrest and, upon conviction thereof, be penalized as set forth in Section 25.04.030.

109.6 Abatement of violation. The imposition of the penalties herein prescribed shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction or to restrain, correct or abate a violation, or to prevent illegal occupancy of a building, structure, or premises, or to sop an illegal act, the conduct of business or the utilization of plumbing equipment or systems on or about any premises.

109.7 Unsafe plumbing. Any plumbing system that is unsafe, constitutes a fire or health hazard, unsanitary condition or is otherwise dangerous to human life, as regulated by this Code, is hereby declared as an unsafe plumbing system. Use of a plumbing system regulated by this Code constituting a hazard to health, safety, or public welfare by reason of inadequate maintenance, dilapidation, obsolescence, fire hazard, disaster, damage, or abandonment is hereby declared an unsafe use. Such unsafe equipment is hereby declared to be a public nuisance and shall be abated by repair, rehabilitation, demolition, or removal.

109.7.1 Authority to condemn plumbing systems. Whenever the code official determines that any plumbing system, or portion thereof, regulated by this Code has become hazardous to life, health, property, or has become unsanitary, the code official shall order in writing that such plumbing either be removed or restored to a safe condition. A time limit for compliance with such order shall be specified in the written notice. A person shall not use or maintain a defective plumbing system after receiving such notice.

When such plumbing system is to be disconnected, written notice as prescribed in Section 109.2 shall be given. In cases of immediate danger to life or property, such disconnection shall be made immediately without such notice.

109.7.2 Authority to order disconnection of utilities. The code official shall have the authority to order disconnection of any utility supplied to a building, structure or plumbing system regulated by this Code when it is determined that the plumbing system or any portion thereof has become hazardous, unsafe, or unsanitary. Written notice of such order to disconnect service and the causes therefore shall be given within twenty-four (24) hours to the owner and occupant of such building, structure, or premises, provided, however, that in cases of immediate danger to life of property; such disconnection shall be made immediately without such notice. The code official shall immediately notify the serving utility in writing of the issuance of such order to disconnect.

109.7.3 Connection after order to disconnect. A person shall not make utility connections to plumbing systems regulated by this Code which have been disconnected or ordered to be disconnected by the code official, or the use of which has been ordered to be discontinued by the code official until the code official authorizes the reconnection and use of such plumbing system.

When any plumbing system is maintained in violation of this Code, and in violation of a notice issued pursuant to the provisions of this section; the code official shall institute any appropriate action to prevent, restrain, correct or abate the violation.

109.7.4 Authority to order vacation of structure. When there is an actual and immediate condition which would endanger life, the code official is hereby authorized and empowered to order and require the occupants to vacate a structure forthwith. The code official shall cause to be posted at each entrance to such structure a notice reading as follows:

DANGER! THIS BUILDING IS UNSAFE. ALL PERSONS ARE WARNED TO KEEP AWAY.

It shall be unlawful for any person to enter such structure except for the purpose of making the required repairs or removal. The procedure for this notice shall be as set forth in Section 105.3.

109.8 Time for compliance and notification to department. All notices of violation shall indicate the requirement of immediate compliance. Upon compliance of violation, the recipient of the notices, the recipient's agent, contractor, or subcontractor shall notify the code official according to the procedure set forth in this Code. Upon notification, the code official shall reinspect the premises in which the violation was found, and if compliance is shown to exist, the violation notice shall be terminated, and type of inspection recorded.

109.8.1 Noncompliance. On new construction, alterations, additions, or replacements, violations not abated within 10 days shall be referred to court. On existing structures which involve occupancy, general rehabilitation, or other problems which involve the development of construction documents or issuance of a building permit, restoration to original occupancy, or other problems which require concurrent action by other departments of the City of Saint Louis, the code official may make its compliance date of any violation notice with regard to any given premises coincide with the compliance date of violations against the same premises by said other departments of the City of Saint Louis.

109.8.2 Immediate compliance. The following types of violations may be followed immediately by referral to court:

1. Failure to secure any required plumbing permit or permits;

2. Operating as a Plumbing Contractor, Drainlayer, Sprinkler Fitter or Mechanical Pipefitter Contractor or as an installer of plumbing without compliance with licensing and registration requirements of this Code;

3. Failure to maintain a plumbing system in a safe and/or sanitary condition;

4. Creation of a nuisance or a hazard to either health or safety.

109.8.3 Compliance. Any violation pertaining to any otherwise illegal installation of plumbing may be referred to a court of competent jurisdiction if not abated within a reasonable time after issuance of the notice of violation by the code official.

109.8.4 City counselor. The City Counselor shall assign such employees as from time to time are necessary to prepare and present to the City Court, or if necessary, to higher courts, the facts pertaining to any violation which has exceeded the time specified in sections of this Code, or if no time is specified, any reasonable time in the judgment of the code official.

109.8.5 Court dates and re-inspections. Before requesting the court to hear any incomplete violation case, the premise involved shall be re-inspected and then the code official assigned to act as a witness for the case shall set forth the facts in a record and the court shall specify the date of the hearing.

109.9 Authority of Board of Plumbing Examiners to levy fines. Any person or entity that violates any provision of the Code shall be guilty of a Class A Misdemeanor. The Board of Examiners for Master Plumbers, Master Drainlayers, and Journeyman Plumbers (Board) shall have the authority to take disciplinary action as set out in the Code, and/or to impose civil penalties, of not less than $5.00 and not to exceed one thousand dollars ($1,000.00), per offense, if the Board finds, after such notice to the individual and a hearing on the matter, that the individual or entity has violated any provisions of the Code.

In determining the amount of penalty to be imposed, the Board may consider both any mitigating circumstances and severity of the violation in relation to the deterrent value of the fine.

Any final order imposing a civil penalty is subject to appeal or review as specified in Section 110.0.

Payment of a civil penalty shall be made within (30) thirty days after the decision of the Board, pending an appeal. Failure to pay a civil penalty by any person licensed under this Code shall be grounds for nonrenewal or denial of reinstatement of a license. In addition, action will be taken against any bonds which may exist to obtain payment of civil penalty.

SECTION 110
MEANS OF APPEAL 21

110.1 Appeals. Any person aggrieved by the decision of the code official, or any Board hereunder, may appeal said decision to the Board of Building Appeals in the manner prescribed in the building code. The fee for said appeal shall be as prescribed in said building code.

SECTION 111
BOARD OF EXAMINERS FOR MASTER PLUMBERS, MASTER DRAINLAYERS AND JOURNEYMAN PLUMBERS

111.1 How constituted. The Mayor, with the approval of the Board of Aldermen, shall appoint one (1) City of Saint Louis licensed Master Plumber, who will act as Chairman of the Board, one (1) City of Saint Louis licensed Master Drainlayer; one (1) City of Saint Louis licensed Journeyman Plumber, one (1) Registered Engineer or a practicing plumbing designer holding a Certified in Plumbing Design Certificate, CPD, issued by the American Society of Plumbing Engineers who has actually engaged in the design of plumbing or sanitary or sewer systems, and one (1) representative from the Plumbing Division, the Plumbing Supervisor or his duly appointed representative. Each of whom shall be a United States Citizen, and each of whom shall have been actively engaged at the trade or business of plumbing for five (5) years in the Saint Louis metropolitan area. These five (5) members shall constitute the Board of Examiners. A majority of the members of said committee shall constitute a quorum for the transaction of business.

111.2 Term of office, compensation. The members of the Board of Examiners, except the Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative, shall hold office for a term of four (4) years or until their successors are duly qualified, unless removed by the Mayor. They shall, except the Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative, receive compensation for their services, as provided by separate ordinance on a per-meeting basis.

111.3 Powers and duties of the Board of Examiners. It shall be the duty of the Board of Examiners to meet on the fourth Monday of each month (the Board may make variances when a holiday falls on this date) to hear and determine any charges or complaints which may be lawfully made against any Master Plumber, Drainlayer or licensed Journeyman Plumber, approve apprentice applications; transact any other lawful business of the Board. Additional meetings may be held at the request of the chairman of the board. Suitable quarters for the use of the Board of Plumbing Examiners shall be provided. Three (3) members of the Board of Examiners in attendance shall constitute a quorum. A majority vote of the board members present is necessary for the approval of any motion.

1. Administration - The Board of Examiners shall receive applications and they shall approve or deny licenses as described herein based on Sections 111.7, 111.8, 111.9, 111.10, 111.11, 111.12, 111.13, 111.14, and 111.18

2. Test - The Board of Examiners shall prescribe the administration, form and content of tests for master plumbers, master drainlayers, journeyman plumbers and the form and content of licenses as described herein. The Board shall also determine the passing grade for each test.

3. Notice - All complaints by citizens concerning plumbing or drainlaying procedures or rules and regulations shall be made to the Board of Examiners in writing. After a thorough investigation, the Board shall respond in writing to each complaint.

4. Adoption of Rules - The Board of Examiners shall adopt rules and regulations, when and as required at the discretion of the Board, consistent with the provisions of this ordinance and the laws of the City of Saint Louis, related to the Board's powers and duties as herein stated. Such rules and regulations adopted by the Board shall be posted in the Section of Plumbing Regulations and Inspections for two weeks prior to becoming effective.

5. Inspection - Order the inspection of any plumbing or drain system whenever deemed necessary for the public safety.

6. Revocation/Suspension of Licenses - After investigation and hearings in accordance with Section 111.12, the Board may revoke or suspend any license that it has issued.

7. The Board shall, pursuant to the regulations and standards herein set forth, determine the qualifications of and provide for the examining, licensing, registration and/or certification of applicants who meet the qualifications and successfully pass the appropriate examination, if required, under this Code. Evidence of license "The License" shall be provided to those who meet the qualifications and successfully pass the appropriate examination, or successfully meet all requirements of renewal of the license. This evidence of license "The License" shall remain the property of St. Louis City and shall be surrendered immediately when demanded under conditions listed elsewhere in this document.

111.4 Secretary of the Board, duties. The code official or his duly appointed representative shall act as Secretary to the Board of Examiners. The Secretary of the Board shall be nonvoting. It shall be the duty of the Secretary to:

1. Keep full and complete records of the proceedings of said Board;

2. Keep a file of the name, residence and place of business of every licensed person engaged in or working at the business of plumbing and drainlaying in the City of Saint Louis (these records shall be updated within ninety days of the renewal period stated in Section 111.5);

3. Give all applicants for examination a written notice of the date and place of examination. The Secretary shall give the applicant an informational letter on examination procedures with an outline of suggested study for the examination applied for;

4. Return all incomplete applications to the applicants;

5. All records shall be open to supervised public inspection during normal working hours, subject to staff availability. Test questions and answers shall not be open to the public.

6. The Secretary shall maintain and secure all examinations, examination documents and materials for the examinations given by the Board as directed by the Board.

111.5 Renewal date for licenses. The renewal of all licenses for Master Plumbers, Master Drainlayers and Journeyman Plumbers shall be due on one date, December 31, 2023, and every three (3) years thereafter.

1. A person applying for renewal of a license, registration or certification may file his/her application starting September 1 first prior to the expiration but not after the last day of the month of January after the license, registration or certificate expires. A person applying for such renewal, prior to its expiration, shall file only a new application form, surety bond, and insurance and pay the fee(s) required under this Code.

2. Upon written application and for good cause shown, waivers or extension of time of the credit hour or reporting requirements of this Code may be granted by the Board in individual cases or classes of cases involving hardship or extenuating circumstances. Extensions granted by the Board may be conditioned on the payment of a late filing fee of thirty ($30) dollars. If the Board grants an extension, the license expiration date shall be extended to the date set by the Board for completion of the credit hour and reporting requirements.

3. A person who fails to comply with all of the above requirements for renewal of his/her license, registration or certificate prior to its expiration, shall, in addition to complying with the requirements of this sub-section, pay a processing fee of one hundred ($100) dollars. A person who submits a renewal application more than one (1) month after the license expiration shall be required to submit to reexamination under the same terms and conditions imposed upon new applicants. Following the grace period, any master plumber, master drainlayer, journeyman plumber, Master Pipefitter, Journeyman Pipefitter, Master Sprinkler fitter or Journeyman Sprinkler fitter that has not renewed shall be required to re-apply and re-test in order to obtain a new license at the discretion of the Board of Examiners under the same terms and conditions imposed upon new applicants.

4. Failure to receive an application for renewal of a license or certificate of authority shall not relieve the licensee or certificate holder from their duty to timely renew, nor shall it relieve them from the obligation to any additional fee(s) necessitated by any late renewal.

111.5.1 Licenses obtained between renewal dates. Any new license issued more than thirty days prior to the renewal date shall expire on the renewal date. There shall be prorating of license fees.

111.5.2 Failure of Master Plumber, Master Drainlayer, Master Pipefitter, or Master Sprinkler fitter to renew. The failure of any Master Plumber or Master Drainlayer, Master Pipefitter, or Master Sprinkler fitter to renew their license during the grace period shall terminate their license, and no permit for doing work under this or any other ordinance of the City of Saint Louis shall be issued them until after they have obtained a new license following re-application and retesting, and they shall be disqualified from carrying on any work authorized to be done under any permit theretofore issued to them or any job unfinished at the date of termination of their license.

NOTE: Failure to renew Department of Natural Resources Backflow Prevention Assembly Certification or to notify the Office of Plumbing and Sewer Inspection of such renewal shall cancel any registration or certification issued by the Board of Plumbing Examiners for the testing of Backflow Prevention Assemblies on the expiration date indicated on the Department of Natural Resources certification.

111.5.2 Licensed Renewal Applicants shall:

1. Submit a completed application for license renewal, a full-face photograph, or the equivalent as determined by the Board, for identification purposes with each renewal.

2. As soon as practicable after the passage of this Code, the Board of Plumbing Examiners shall, after providing reasonable opportunity for public participation, adopt reasonable rules and regulations to interpret and implement the provisions of this Code with respect to continuing education. A licensee may obtain a copy of the rules and regulations upon application and upon payment of fee established for this purpose.

3. Holders of active licenses shall also submit verification that they have attended continuing education courses, seminars, films or other training approved by the Board of Plumbing Examiners in the following minimums starting January 1, 2013:

4. Holders of active licenses shall also submit verification that they have attended continuing education courses, seminars, films, or other training approved by the Board of Sprinkler Fitter Examiners in the following minimums starting January 1, 2013:

A. Masters/Contractors twelve (12) PEU (Professional Education Units) per three-year (3) license cycle pro-rated on a yearly base.

B. Journeyman Licensee twelve (12) PEU per three-year license cycle pro-rated on a yearly base.

C. There may be a carryover of a maximum of four (4) PEU's in excess of the required amount of PEU's to the next license cycle.

111.5.3 License Limitations. Any Master licensed or registered under this Code shall be limited to obtaining permits required under the provisions of this Code, for a single company, firm, proprietorship, partnership or corporation at any given date or time and shall be registered with the Saint Louis City Office of Plumbing and Sewer Inspection as an officer or a full time employee of said company at least thirty (30) days prior to exercising the privileges of the license registration on behalf of said company. Such companies shall be registered with the state of Missouri, Office of Secretary of State, Jefferson City, Missouri.

Any Master, licensed or registered under this Code shall be limited to being employed or working for the contractor that he/she is said Master for as stated above, regardless of holding any other licenses issued under this Code unless said company is subcontracted out to another contractor. It is then, this Master would take out permits for work performed under his Master License as a subcontractor.

111.5.4 Advertising. No person, corporation, partnership, joint venture, or other entity shall place or authorize the placement of an advertisement or message offering services subject to any provision of this Code in any advertising medium unless the advertisement or message clearly states the name, business address and license number of at least one (1) appropriately licensed, certified and/or registered person qualified to perform such services and who is in responsible charge and control of work performed by said entity.

111.6 Inactive license. Any licensed person who is not working at his/her licensed trade and who desires to retain his/her license may do so by notifying the Board of Plumbing Examiners that he/she wishes to be placed in inactive status. Such notice shall be in writing and shall state that the license holder is not working at his/her licensed trade, wishes to be placed in inactive status, understands that he/she is prohibited from working while inactive and agrees to notify the Board to activate his/her license prior to resuming work. It shall be a Violation of this Code for a license holder to perform work in his/her license category while in inactive status. In order to keep an inactive license as a Master Plumber, the license holder must maintain an active license as a Journeyman Plumber if actively working at the trade.

The Board shall respond in writing to the license holder in each inactivation or reactivation action and each such action shall be noted in the Board minutes. An inactive license shall be issued stating the license number and type, which is inactive. This inactive license shall be valid for a period of ten (10) years. Three (3) months prior to the expiration date, the department shall notify the holder at his last known address, the date that his inactive license will expire so that it can be renewed at the holder's request and payment of fees and other requirements of the Board.

It is the responsibility of the Inactive License holder to notify the Board of any license change or change in address. Maintenance of any other license will be equivalent to notifying the Board of address change.

License holders in inactive status, who renew their licenses, are not required to accrue continuing education course hours, as a condition of renewal. However, they are required to accrue the minimum continuing education hours for any prior year or any part thereof in which their license was active.

111.7 Bond and Insurance Required.

1. Certificate of Insurance - Streets Department: A copy of a Certificate of Insurance for combined One Million Dollars ($1,000,000.00) per occurrence, minimum limits liability insurance for bodily injury and property damage shall be submitted to the Plumbing Section on January 1st of each year by a Certified Master Plumber and Master Drainlayer. The Certificate shall state the insurance company's name, address, phone number, kind of insurance, coverage, and policy number. The insurance company shall notify the Plumbing Section twenty (20) days prior to cancellation of a certificate, in writing. Permits shall not be issued to contractors who fail to file a Certificate of Insurance with the Plumbing Section annually. This policy shall include coverage for the correction of plumbing work performed contrary to this Code, and for Street Department requirements in connection with excavations and street blockage permits.

2. Bonds by Master Plumbers and Drainlayers - Streets Department: It shall be the duty of every Plumbing or Drainlaying Contractor who works in the public rights-of-way to give surety bond to the City of Saint Louis in the sum of Twenty-Five Thousand Dollars ($25,000.00) annually. Said bond or bonds shall meet the following requirements:

a. Amount of $25,000.00;

b. Saves harmless the City or Saint Louis;

c. Must be continuous Cancellation only after thirty (30) days' notice to the Director of Streets:

d. Properly signed. scaled and notarized.

After the bond or bonds are forwarded to Director of Streets. they shall be approved by the Comptroller and filed with the Register of the City of Saint Louis. Said bonds shall be renewed annually; provided, however, that if the security shall become impaired. the Comptroller shall demand that additional security be given.

3. Certificate of Insurance - Other: No permits required under the provisions of this Code shall be issued until such applicant shall have on file in the Office and with the Code Official an approved surety bond in the amount of Twenty-Five Thousand Dollars ($25,000.00), and a certificate of Contractor Commercial General Liability Insurance in the minimum amount of One Million Dollars ($1,000,000.00) per occurrence. Each person allowed to make application for permit under this shall agree to maintain a standard ISO version Commercial General Liability policy form, or its equivalent, providing coverage for, but not limited to, Bodily Injury and Property Damage, Premise/Operations, Products/Completed Operations, Contractual Liability, Broad Form Property Damage, Explosion (X), Collapse (C), and (U) Underground coverage, Severability of Interest commercial General Liability with limits of not less than $1,000,000 per occurrence, Combined Single Limits (CSL) for bodily injury and property damage that may occur as result from operations. Coverage shall also extend to products and completed operations, contractual liability, and Explosion (X), Collapse (C) and Underground (U). The City of St. Louis, Missouri, shall be named as an additional insured for its own interests and the interests of its residents.

4. City Counselor Approval: The bonds and insurance required in this Code shall be approved by the City Counselor and shall be given for the faithful observance of this Code and Sections 341.090 to 341.220 RSMo and all orders, rules and regulations adopted hereunder or under the provisions of sections 341.090 to 341.220 R.S. Mo. for the protection of the public health and safety and shall indemnify the City of St. Louis, Missouri, or any other governmental agency, or any person, firm, or corporation for any damage or injury sustained through the negligence or malfeasance of such applicant, their servants, agents or employees in performing work or for any damages or injury sustained due to such applicant's failure to perform work

in a careful and workmanlike manner, in conformity with this Code and the orders, rules and regulations adopted hereunder or under the provisions of Sections 341.090 to 341.220 R.S. Mo. or for the use of the City of St. Louis, Missouri due to non-payment of fees thirty (30) days from due date, or for the use of any person, firm or corporation with whom said applicant contracts to do work to indemnify any such person, firm or corporation for damages sustained due to failure of applicant to do work so contracted and shall be conditioned that the principal in said bond will employ licensed Journeyman in the performance of work which requires a Journeyman license under this Code.

TABLE 111
BOARD AND COMMITTEE FEES

Item	Fee	Duration	Section	Remarks and Requirements
Board of Plumbing Examiners Licenses:				
Application Fee (all classes)	$50.00			To cover cost of application only
Journeyman	$50.00	3 years	111.10	To cover cost of licensing
Master Drainlayer	$300.00	3 years	111.9	To cover cost of licensing
Master Plumber	$300.00	3 years	111.8	To cover cost of licensing
Master Plumber/ Drainlayer	$600.00	3 years	111.8 & .9	To cover cost of licensing
Registration Fee (Apprentice)	$25.00	5 years	111.11	To cover cost of registration
Master Sprinkler Fitter	$300.00	3 years	111.14	To cover the cost of licensing
Sprinkler Fitter Journeyman	$50.00	3 years	111.15	To cover the cost of licensing
Replace lost license	$25.00			Replacement cost
Testing				
Homeowners exam	$25.00	2 years	111.17	Exam cost & application
All other tests the City of Saint Louis administers	$50.00			Exam cost only
Board of Sprinkler Contractors & Sprinkler Fitters Licenses:				
Application Fee (all classes)	$50.00			Exam cost only
Master Sprinkler Fitter	$300.00	3 years	112.8	Licensing cost
Sprinkler Fitter Journeyman	$50.00	3 years	112.9	Licensing cost
Registration Fee (Apprentice)	$25.00	5 years	112.10	Registration cost
Replace lost license	$25.00			Replacement cost
Backflow Tester				
Master Pipefitter	$300.00	3 years	111.12	Application & license cost
Journeyman Pipefitter	$50.00	3 years	111.13	Application & license cost
Replace lost license	$25.00			Replacement cost
NOTE: FEES SHALL BE PRORATED				

111.8 License as a Master Plumber.

1. An applicant for a Master Plumber's license shall have the following qualifications:

2. At least five (5) years' experience as a Journeyman Plumber licensed under this Code, in addition to meet the requirements of the Journeyman Plumber License, or under laws and regulations requiring similar qualifications the intent of this requirement is that the applicant for Master Plumber shall have at least ten (10) years practical experience in the design, planning, installation and supervision of plumbing systems including but not limited to, drainage and vent piping facilities; potable water supply and distribution piping systems; Plumbing Appliances, Appurtenance, and fix-

tures, and potable water cross connection control facilities. Or, in lieu thereof, possess such experience or training, as is the equivalent thereto. Equivalent training and experience shall mean that:

A. The applicant shall be a civil or mechanical engineer, registered with the Missouri Board for Architects, Professional Engineers and Land Surveyors, and have four (4) years of experience in the design, planning and installation of plumbing, drainage, vent piping facilities, potable water supply and distribution piping and potable water cross connection control which must be obtained under the direction of a Master Plumber licensed under this Code or under laws and regulations requiring similar qualifications;

Or;

B. The applicant shall have satisfactorily completed a five (5) year course in practical plumbing, drainage, vent piping facilities, potable water supply and distribution piping and potable water cross connection control at a recognized trade or technical school, and five (5) years' experience in the design, planning and installation of plumbing, drainage, and vent piping facilities, potable water supply and distribution piping and potable water cross connection control, which must be obtained under the direction of a Master Plumber licensed under this Code or under laws and regulations requiring similar qualifications;

Or;

C. The applicant shall be a Master Plumber who has qualified for a license under examination, rules, and regulations, similar to the St. Louis City, Missouri, Board of Plumbing Examiners Examination rules and regulations; has been working under rules and regulations equal to or exceeding the rules and regulations of this Code; has been examined and qualified for a St. Louis City Journeyman Plumber license; and has worked under the direction of a licensed St. Louis City, Missouri, Master plumber for at least two (2) years;

Or;

D. Such other experience and/or training as the Board of Plumbing Examiners determines is equivalent.

3. He/she shall possess the ability to direct other persons in the performance of plumbing work and shall be skilled in designing and installing plumbing fixtures and facilities and shall have a thorough knowledge of the art of plumbing necessary for the protection of the public health.

A. Applicant's qualifications shall be presented to the Board of Examiners for approval to take the written examination.

B. Approved applicant shall be notified by the Secretary of the Board as to the date and place of the written examination. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant is responsible for all testing fees.

C. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

D. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety - (90) days. Applicants that have not passed the examination for the first time shall be notified that they may re-take the examination after three (3) months (90 days) and shall be eligible every three (3) months (90 days) there after until he/she has passed the examination.

E. Successful applicant shall have a digital picture taken by the Plumbing Department, and have a certificate of liability insurance for bodily injury and property damage in the amount of at least one million dollars ($1,000,000) naming the applicant as an additionally insured, and approved surety bond in the amount of Twenty-Five Thousand Dollars ($25,000.00) and the license fee required by Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a master plumber.

F. No journeyman plumber shall be allowed to hold a master plumber's license. When a journeyman plumber qualifies as a master plumber, the journeyman must relinquish the journeyman plumber's license to the Board of Plumbing Examiners before a master plumber license can be issued.

111.9 License as a Master Drainlayer.

1. An applicant for a Master Drainlayers license shall possess a current Master Plumber license issued by St. Louis City or have the following qualifications:

A. Five (5) years' experience in drainlaying under the personal direction of a Master Drainlayer licensed

under the rules and regulations of this Code, or under laws and regulations requiring similar qualifications or such other experience and/or training as the Board of Plumbing Examiners determines is equivalent. In lieu thereof the applicant shall have a degree in civil or mechanical engineering from an accredited college or university, and three (3) years' experience in design, installation, and planning of private and public sanitary storm sewers and sewerage systems.

B. The applicant shall possess the ability to direct other persons in the installation of sanitary and storm sewers, and sewerage systems, private and public and shall have a thorough knowledge of the art of drainlaying necessary for the protection of the public health.

C. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

2. Applicant's qualifications shall be presented to the Board of Examiners for approval to take the written examination.

3. Approved applicant shall be notified by the Secretary of the Board as to the place of the written examination. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant is responsible for all testing fees.

4. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may re-take the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

5. Successful applicant shall have a digital picture taken by the Plumbing Department, and have a certificate of liability insurance for bodily injury and property damage in the amount of at least one million dollars ($1,000,000) naming the applicant as an additionally insured, an approved surety bond in the amount of Twenty-Five Thousand Dollars ($25,000.00), and the license fee required by Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a Master Drainlayer.

111.10 License as a Journeyman Plumber.

1. An applicant for a Journeyman Plumber license shall possess training and experience in all phases of the plumbing industry, they shall be skilled in installing plumbing fixtures and facilities and shall have a thorough knowledge of the art of the plumbing system for the protection of the public health and shall have at least five (5) years of experience as an Apprentice Plumber under the direction and supervision of a Master or Journeyman Plumber licensed under the rules and regulations of this Code, or under laws and regulations requiring similar qualifications, or under an established code having comparable requirements, or, in lieu thereof, the applicant shall possess such experience or training as is the equivalent thereto. Equivalent training and experience may be considered to mean either:

A. A degree in civil or mechanical engineering from an accredited college or university, and three (3) years of experience in the design, planning and/or installation of plumbing, drainage, vent piping facilities, potable water supply and distribution piping and potable water cross connection control under the direction of a Master or Journeyman Plumber licensed under the rules and regulations of this Code, or under laws and regulations requiring similar qualifications.
Or;

B. The satisfactory completion of a three (3) year course in practical plumbing, drainage, vent piping facilities, potable water supply and distribution piping, and potable water cross connection control at a recognized trade or technical school and five (5) years' experience as an Apprentice Plumber under the personal direction of a Master or Journeyman Plumber licensed under the rules and regulations of this Code, or under rules and regulations requiring similar qualifications;
Or;

C. Such other experience and/or training as the Board of Plumbing Examiners determines is equivalent.

Note 1. A maximum of one (1) years' experience may be used as a part of required experience while employed in plumbing maintenance. It may be deemed equivalent experience for one (1) year of experience required for Master or Journeyman Plumber license.

Note 2: Experience for this license may not be acquired during the same time period as experience is acquired for another license.

2. Applicant's qualifications shall be presented to the Board of Examiners for approval to take the written examination.

3. Approved applicant shall be notified by the Secretary of the Board as to the place of the written examination. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant is responsible for all testing fees.

4. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

5. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may retake the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

6. Successful applicant shall have a digital picture taken by the Plumbing Department, and have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a journeyman plumber.

111.11 Registration as an Apprentice Plumber.

1. A Master licensed by St. Louis City, who employs an apprentice in St. Louis City, and/or the Missouri Counties of St. Louis, Jefferson, Franklin, and St. Charles County, and/or the Illinois Counties of Monroe, Madison, and St. Clair County shall register that apprentice in St. Louis City under the rules contained in this ordinance. All persons serving an apprenticeship in any trade registered under this Code shall register with the Board of Plumbing Examiners prior to the start of their work training in that trade. The Master is held solely responsible to register all apprentices. Penalties for failure to register an apprentice shall be as defined in this Code for violations and shall also be subject to suspension or revocation of license by the Board of Plumbing Examiners. A Joint Apprenticeship Training Committee (JATC), registered with the Labor Department, may act on behalf of an employer who is not licensed as a Master under this Plumbing Code to facilitate the registration of apprentices.

A. The word "apprentice" as used in this Code shall mean a person learning, or already having experience in, the principles and art of the trade category in which the person is registered, under the personal direction and supervision of a licensed Master or Journeyman.

B. The word "Experienced Apprentice" as used in this Code shall mean a person, who in the judgment of the Board of Plumbing Examiners, previous to his application, has received a minimum of two and one-half (2-½") years equivalent training and experience learning the principles and art of the trade category in which the person is registered during which the applicant has received a minimum of five hundred (500) hours of approved classroom training, and who has received a minimum of ten (10) hours of OSHA approved Safety Training for Construction, and who has been certified by the Master for whom he/she is currently employed that said apprentice is capable of performing installations that are in compliance with the Code and with the principals and art of the trade category, and who shall continue his training and experience under the direction and supervision of a licensed Master until qualified to apply for Journeyman in that trade.

C. An Apprentice applicant whose training was not received under a St. Louis City licensed Master may also apply for "Experience Apprentice" upon meeting the requirements listed in the above paragraph or the equivalent as determined by the Board.

2. Personal Supervision of Apprentices. An Apprentice is to be under the supervision of a Master or Journeyman at all times. Experienced apprentices are not authorized to supervise an apprentice. The Master or Journeyman is not required to constantly watch the Apprentice but is to lay out the work required and permit the Apprentice to perform the work on his/her own.

Masters or Journeymen are permitted to leave the immediate work area and remain on job site without being accompanied by the Apprentice. But the Apprentice should know where the Master or Journeyman is located on the jobsite, so she/he can request assistance and/or direction.

Job site is defined as follows:

A. A single building or structure, or a group of related and supporting buildings, on one site covered by one or more permits, or

B. A designated subdivision consisting of more than one single family residence on one contiguous section of land, or

C. A residential complex containing one or more multi-family structures on one contiguous section of land and contained within one designated development. No licensed apprentice plumber shall serve more than a 7-year licensed apprenticeship period. If, upon completion of a 7-year licensed apprenticeship period, such licensed apprentice plumber does not apply for the examination for a journeyman plumber's license and successfully pass the examination for a journeyman plumber's license, his or her apprentice plumber's license shall not be renewed and will be determined expired.

Exception: If an individual cannot make the qualified number of hours needed to take the Journeyman's test within the 7 years listed above due to no fault of their own, the Board may extend the expiration of that license.

An apprentice or experienced apprentice must make an initial application to the Board within twelve (12) months of completion of the experience requirement for license (minimum term as set forth in this section). The Board may revoke an apprentice license for failure to make such application for Journeyman License. The Board may review all apprentice and experienced apprentice's registrations that have extended more than two (2) years beyond the listed minimum term. Registration may be canceled if the Board determines, after providing the registrant with notice and an opportunity to be heard, that the registrant is not learning the principles and art of the trade category in which he or she is registered and is not making an attempt to become licensed. The Board may remove "Experienced Apprentice" status, if the Board determines that the registrant has inadequate knowledge of the principals and art of the trade category to hold such registration in which he or she is registered. The Board may return such registrant to a lesser classification. The decision of the Board involving a registration may be appealed in the same manner as other decisions of the Board.

If an applicant neglects, fails or refuses to take an examination for license under this Code, the application is denied. However, such applicant may submit a new application for examination accompanied by the required application fee. Application fees for examination for a plumber's license are not refundable.

A. Plumber Apprentice - minimum term of apprenticeship shall be five (5) years.

B. Experienced Plumber Apprentice - minimum term of apprenticeship shall be as determined by the Board of Plumbing Examiners but no less than a total of five (5) years equivalent training and experience.

3. Apprentices and/or Experienced Apprentices are prohibited from registering in more than one (1) trade category in the same time period.

4. An applicant for Apprentice or Experienced Apprentice Registration shall:

A. Register with the Board of Plumbing Examiners using the form approved and provided by the Board. Said registration shall include the applicant's name, Social Security Number, address, zip Code, age and telephone number. The applicant shall also include on the application the name of the licensed Master under which the applicant will be receiving training and instructions.

B. Furnish a letter from a St. Louis City Master, licensed in the trade in which he/she is registering confirming the apprentice's or experienced apprentice's employment and previous experience and accepting responsibility for training said apprentice.

C. Furnish a listing of all journeymen, apprentice and experienced apprentices currently in the St. Louis City Master's employ by name and license or registration number, or indicate no apprentices employed.

D. Proof of enrollment within six months of application in (This requirement to become effective Jan 1, 2011):

(A) An applicable apprenticeship program certified by the Bureau of Apprenticeship and Training of the United States Department of Labor (BAT/ATELS); OR;

(B) A Board approved equivalent apprenticeship program such as classroom/laboratory training by a Trade School such as Ranken Technical College or Jefferson College or by any school or organization approved, accredited or certified, as applicable, by:

(i) The Higher Learning Commission, a Commission of the North Central Association of Colleges and Schools; or

(ii) The Accrediting Commission of Career Schools and Colleges of Technology; or

(iii) The National Center for Construction Education and Research; or

(C) An applicable, integrated five (5) year combined classroom and field training apprenticeship program that is conducted by any school or organization approved, accredited or certified, as applicable, by:

(i) The Higher Learning Commission, a Commission of the North Central Association of Colleges and Schools; or

(ii) The Accrediting Commission of Career Schools and Colleges of Technology; or

(iii) The National Center for Construction Education and Research; or

2. Presentation by the applicant or any Entity or organization of a written, individual training program providing five (5) years combined of educational training or classes and field work or on-the-job training obtained as follows:

(A) At least 500 classroom hours of educational training or classes covering work that requires a license under this Section as allowed by the (Note to this subsection below) that is conducted by any combination of schools or other organizations approved, accredited, or certified as applicable by:

(i) The Higher Learning Commission, a Commission of the North Central Association of Colleges and Schools; or

(ii) The Accrediting Commission of Career Schools and Colleges of Technology; or

(iii) The National Center for Construction Education and Research and;

(B) The balance of the required hours needed to equal five (5) years through field work and/or on-the-job training under the supervision and inspection of a Journeyman licensed under this Section to perform the work involved.

Note: Within the total 500 classroom hours presented as part of any individualized training program the individual program must contain a minimum of 440 hours technical instruction in the installation, alteration, reconstruction, repair, replacement and/or servicing of Plumbing Systems.

(C) Applicants shall also have taken by St. Louis City, a full-face photograph or the equivalent as determined by the Board, for identification purposes, and pay a registration fee of Twenty-Five Dollars ($25.00).

5. Apprentices and Experience Apprentices shall, during the month of July of each year after registration, report their training and employment status to the Board. Such report shall be on a form provided by the Board, shall list for the past year, (July 1 to June 30,) all employers, and period of time worked.

NOTE: Failure to report this required information to the Board of Examiners may cause the registration to be canceled.

6. Any Master employing an apprentice, and/or an experienced apprentice shall advise the Board in writing immediately upon the commencement or termination of the apprentice's employment. In addition, by the last workday of July of each year the Master shall provide to the Board a list of each apprentice and/or experienced apprentice in their employ as of June 30th of the prior month.

7. The total number of apprentices and experienced apprentices employed by a Master at any given time shall not exceed the total number of licensed Journeyman employed at that time plus, one (1) additional apprentice or experienced apprentice for each active Master. In times of work shortages, upon application, consideration may be given by the Board of Plumbing Examiners to a St. Louis City licensed Master or JATC which supervises the training of apprentices, to waive this rule with the intention of maintaining training of previously registered apprentices.

111.12 Master Pipefitter. An applicant for a license as a Master Pipefitter shall have the following qualifications:

1. A minimum of ten (10) years verifiable training and/or experience as a pipefitter under a Department of Labor approved apprenticeship program or with a reputable, bona fide process piping contractor, at least five (5) years of which has been in a supervisory capacity or such other training and experience as the Board of Examiners determines to be equivalent.

2. A thorough knowledge of the design and installation of process piping systems in general and backflow prevention devices, assemblies and methods relating to process piping systems in particular.

3. Meet all appropriate local, state and federal requirements for conducting a business in St. Louis City, Missouri, including but not limited to, obtaining applicable licenses, registrations and tax numbers.

4. An applicant shall be required to receive a passing grade on an examination approved or selected by the Board of Examiners in addition to the foregoing requirements.

5. Approved applicant shall be notified by the Secretary of the Board as to the place of the written examination. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant is responsible for all testing fees.

6. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

7. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may retake the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

8. Successful applicant shall have a digital picture taken by the Plumbing Department and have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a Master Pipefitter.

111.13 Journeyman Pipefitter. An applicant for a Journeyman Pipefitter License shall have the following qualifications:

1. A minimum of five (5) years verifiable training and/or experience as a pipefitter under a Department of Labor approved apprenticeship program or with a reputable, bona fide process piping contractor or such other training and experience as the Board of Examiners determines to be equivalent.

2. A thorough knowledge of the installation of process piping systems in general and backflow prevention devices, assemblies and methods relating to process piping systems in particular.

3. An applicant shall be required to receive a passing grade on an examination approved or selected by the Board of Examiners in addition to the foregoing requirements.

4. Approved applicant shall be notified by the Secretary of the Board as to the date and place of the written examination. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant is responsible for all testing fees.

5. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

6. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may retake the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

7. Successful applicant shall have a digital picture taken by the Plumbing Department and have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a Journeyman Pipefitter.

111.14 Master Sprinkler Fitter. An applicant for a Master Sprinkler Fitter license shall have the following qualifications:

(A) A minimum of ten (10) years training and/or experience as a Sprinkler fitter, at least five years of which shall have been under a Department of Labor approved apprenticeship program or with a reputable, bona fide Fire Suppression Sprinkler System Contractor, and at least five (5) years of which shall have been as a licensed Journeyman or in a similar supervisory capacity, or such other experience and/or training as the Board of Examiners determines to be equivalent.

Or

(B) A bachelors of science degree in Civil or Mechanical engineering from an accredited university and the applicant shall have had at least five (5) years experience in automatic sprinkler system design, planning and/or installation of same under the supervision of a Master Sprinkler Fitter licensed under this Code or equivalent license, and must be a licensed professional engineer licensed to practice in the State of Missouri.

Or

(C) A NICET Level IV certification in the Automatic Sprinkler System Layout field, in which the applicant shall have received training in the sprinkler system design, and the applicant shall have had at least five (5) years experience in automatic sprinkler system design, planning and/or installation of same under the

supervision of a Master Sprinkler Fitter licensed under this Code or equivalent license, at least five (5) years of which shall have been in a supervisory capacity.

Or

(D) A NICET Level III certification in the Automatic Sprinkler System Layout field, in which the applicant shall have received training in the sprinkler system design, and the applicant shall have had at least ten (10) years experience in automatic sprinkler system design, planning and/or installation of same under the supervision of a Master Sprinkler Fitter licensed under this Code or equivalent license, at least five (5) years of which shall have been in a supervisory capacity.

(E) A thorough knowledge of the design and installation of fire suppression sprinkler systems in general and backflow prevention devices, assemblies and methods relating to fire suppression systems in particular.

(F) Meet all appropriate local, state and federal requirements for conducting a business in St. Louis City, Missouri, including but not limited to, obtaining applicable licenses, registrations and tax numbers.

(G) An applicant shall be required to receive a passing grade on an examination approved or selected by the Board of Examiners in addition to the foregoing requirements.

(H) Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may retake the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

(I) Successful applicant shall have a digital picture taken by the Plumbing Department and have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a Master Sprinkler Fitter.

111.15 Journeyman Sprinkler Fitter. An applicant for a Journeyman Sprinkler fitter license shall have the following qualifications:

1. A minimum of five (5) years verifiable training and/or experience as a sprinkler fitter under a Department of Labor approved apprenticeship program or with a reputable, bona fide Fire Suppression Sprinkler System Contractor or such other training and experience as the Board of Examiners determines to be equivalent.

2. Be thoroughly familiar with the installation of fire suppression sprinkler systems in general and backflow prevention devices, assemblies and methods relating to fire suppression systems in particular.

3. An applicant shall be required to successfully pass an examination designed or selected by the Board of Examiners in addition to the foregoing requirements.

4. An applicant shall be required to receive a passing grade on an examination approved or selected by the Board of Examiners in addition to the foregoing requirements.

5. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license within ninety (90) days. Applicants that have not passed the examination for the first time shall be notified that they may retake the examination after ninety (90) days (3 months) and shall be eligible every ninety (90) days (3 months) there after until he/she has passed the examination.

6. Successful applicant shall have a digital picture taken by the Plumbing Department and have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a Journeyman Sprinkler Fitter.

111.16 Interim Journeyman License. In the event the Board of Plumbing Examiners determines that a shortage of licensed Journeymen in a particular trade exists in St. Louis City, an Interim Journeyman License or an Experienced Apprentice License in place of the Interim Journeyman License for that trade may be granted.

1. An applicant for an Interim Journeyman License for that trade may be granted to a person whose most recent residence and employment as a journeyman was more than 125 miles from the St. Louis City courthouse and who has previously registered and is currently registered as an apprentice or experienced apprentice working under a bonded and insured St. Louis City Licensed Master in that trade and who meets all the practical experience and training qualifications required by this Code for license as a Journeyman in that trade, and by the applicant's choice has not passed the required written examination. Applicants

for an Interim Journeyman License shall submit a written application to the Board and pay the same fee(s) as an applicant for a regular Journeyman License.

2. Interim Journeyman or the Experienced Apprentice licenses shall expire one year after the date of issuance and are non-renewable. A person whose Interim Journeyman License or the Experienced Apprentice License has expired is not eligible to apply for another Interim Journeyman license in that trade.

3. Interim Journeyman or the Experienced Apprentice license may be upgraded to a regular Journeyman license by passing the appropriate examination. Applicant for the appropriate examination must apply for issuance of the exam credentials during the term of the Interim License. If the Interim license has expired, a new application must be made to the Board. The Board will accept the previous review of qualification for experience and training unless there is information that the previous review considered information that was falsified or otherwise invalid.

4. An interim Journeyman License or the Experienced Apprentice may not be used to qualify the number of Apprentices that may be approved for an entity employing Journeymen.

111.17 Certification for homeowner's permit. A homeowner that is found qualified by the Board of Examiners shall be allowed to do plumbing work on an owner-occupied single-family dwelling under the following conditions:

1. The homeowner shall reside in the one-family dwelling and present proof of ownership to the Board of Examiners;

2. Such plumbing work shall be done by the homeowner and used exclusively by the homeowner and the homeowner's family;

3. Homeowners making plumbing repairs on a one-family dwelling for rental or sale purposes are in violation of this section.

4. The applicant shall complete application provided by the Section of Plumbing Regulations and Inspections and pay the application fee shown in Table 111.

5. The Board of Examiners shall allow the homeowner to take the homeowner Examination only once. If the homeowner fails to qualify by obtaining a passing score, the homeowner shall not be permitted to take the examination again for one year and the plumbing work must be done by certified individuals.

6. If the homeowner qualifies, the Board of Examiners shall certify the homeowner to work on the specified owner-occupied one family dwelling. This certification shall be valid for two (2) years only at the address listed on the application.

7. The homeowner with this certification shall be allowed to obtain one permit at a time for up to four (4) plumbing fixtures. Only one permit for a homeowner shall be open at any time. Plumbing permits for homeowners may not be extended beyond six (6) months. Any open permit shall be revoked when the homeowner's certification expires. The homeowner shall not be permitted to do work outside of the building.

8. After the homeowner's certification has expired, the homeowner may re-apply and re-test for a new certification.

111.18 The intent of this section is that candidates meet the approval of the Board of Plumbing Examiners as having the experience requirements for each license for which an application has been reviewed by this Board of Plumbing Examiners, and in addition successfully pass an examination designed or selected by the Board of Examiners. The order of obtaining approval from the Board or in acquiring a passing grade does not remove the requirement that both are obtained.

111.19 Interceptors (Separators) - Registration, Maintenance and Inspection Required.

1. Upon adoption of Rules and Regulations by The Metropolitan St. Louis Sewer District, MSD, for inspections of existing interceptors to be scheduled annually, the Building Commissioner and/or the Code Official is authorized to enter into a contract with MSD for record keeping of such inspections per the requirements of this section.

2. Interceptors, including but not limited to grease interceptors, oil interceptors/separators, installed in accordance with this Code shall be inspected and certified as to proper maintenance and operation annually, by persons who are properly licensed Plumbers pursuant to this Code. The owner/user shall maintain all interceptors in proper working condition.

3. The owner of these devices shall maintain a written record of interceptor maintenance for two years. All such records shall be available at all times and shall be submitted to the inspector at the inspector's request. These records shall contain the date of inspection or

maintenance, name of the person performing the inspection or maintenance, and the manager's signature or initials for verification.

A. Hydromechanical grease interceptors shall be cleaned as required by use and as required by the manufacturer, but at intervals not longer than ninety (90) days at the owners/user's expense. Gravity Grease interceptors and Oil and sand interceptors shall be cleaned as required by use, but at intervals not longer than one hundred eighty (180) days.

Interceptors shall be kept free of inorganic solid materials such as grit, rocks, gravel, sand, eating utensils, cigarettes, shells, towels, rags, etc., which could settle into the interceptor and thereby reduce the effective volume. The use of biological chemicals as a grease degradation agent is conditionally permissible upon written approval of the Chief Plumbing Inspector. Any establishment using this method shall maintain the interceptor in such a manner that abatement from the interceptor's outlet is consistently attained.

B. The results of such inspections shall be submitted to the Office of Plumbing and Sewer Inspection, within thirty (30) days after making such test, on a form which is acceptable to the Code Official and shall be completed and signed by the tester. A copy shall also be provided at time of inspection, or an appropriate sticker shall be applied to maintenance records posted in the location of the device.

C. The Office of Plumbing and Sewer Inspection shall maintain all records of inspections performed in accordance with the Code requirements and notify all owners when retesting is required. Violation notices shall be issued, and notification shall be sent to the Health Department and MSD, for failure to perform or register the required test.

D. The fee for such notification, record maintenance and registration shall be ten dollars ($10) per each inspection report submitted. Fees shall be paid by the employing Master in a manner approved by the Code Official, at the time the test report is submitted by the device tester to the Office of Plumbing and Sewer Inspection.

4. Installations of grease and oil interceptors/clarifiers by persons who are properly licensed pursuant to this Code as a Plumber and certified by the Board of Plumbing Examiners for this inspection.

5. Inspections of grease and oil interceptors/clarifiers by persons who are properly licensed pursuant to this Code as a Plumber and certified by the Board of Plumbing Examiners for this inspection.

6. This provision shall take effect no later than one year and no sooner than ninety (90) days after the final adoption of this ordinance and the adoption of regulations requiring such inspections by MSD.

111.20 Powers of the Board to suspend or revoke licenses. Upon receipt of a written complaint to the Board filed by the Code Official, or the Building Commissioner or any aggrieved person, or upon the Board's own motion, the Board shall make an investigation into the complaint which it may deem necessary and thereafter shall conduct a hearing upon such complaint.

111.20.1 Reasons for suspension or revocation of licenses. The Board of Examiners shall have the power to suspend or revoke any license, registration, or certificate issued pursuant to this Code for cause. Although such actions may be based upon causes other than those enumerated, the following are declared to be adequate causes for suspension or revocation. The following offenses shall be cause for a hearing on a master plumber's, master drainlayer's or journeyman plumber's license:

1. If the license holder has obtained same by fraud or misrepresentation, that license shall be immediately revoked;

2. The license holder has intentionally violated any of the provisions of this section or any other portion of this Code;

3. The license holder is found to be negligent, unskilled, and unfaithful in their work or found to be unfit, incompetent, or untrustworthy in the work of plumbing or drainlaying.

4. The license holder has been convicted of a crime or of violating an Ordinance involving moral turpitude;

5. The licensed master plumber has intentionally employed an unlicensed person to perform plumbing work covered by this Code;

6. The licensed master plumber has directed apprentices to work without the supervision of a licensed journeyman or licensed master plumber;

7. The licensed master plumber or licensed master drainlayer has obtained permits for individuals who are not in their employ or under their supervision;

8. The licensed master plumber or licensed master drainlayer has allowed anyone to enter an excavation that has not been properly shored.

9. Disciplinary action against the holder of a license or certificate of authority, or other right to practice any profession regulated by this chapter granted by another state, territory, federal agency, or country upon grounds for which revocation or suspension is authorized in this Code;

10. The suspension or revocation of a Master or Journeyman license by any jurisdiction;

11. A revoked license, registration, or certification may be reinstated by order of the Board only upon application and examination, if required, and in the same manner as provided for new applicants.

12. Upon suspension and or revocation the license holder is to surrender his/her license(s) at the close of the 1 Board of Plumbing Examiners hearing.

111.20.2 Notice of hearing. Within seventy-five (75) days after the filing of a written complaint at a Board meeting, a notice of hearing shall be sent to the license holder. The notice shall be served to the last known address by certified mail, return receipt requested, at least ten (10) calendar days prior to any scheduled hearing and shall include:

1. A statement of the time, place, and nature of the hearing;

2. A reference to the particular section(s) of the code and rules involved;

3. A short, plain statement of the complaint and a statement of the issues before the Board;

4. A statement that the nature of the proceeding before the Board will be a formal inquiry into the complaint, at which time an opportunity will be afforded the individual or contractor to respond to the allegations in the complaint by his/her testimony, the testimony of witnesses, or by documentary evidence;

5. A statement that the individual or contractor has a right to be represented by legal counsel; and

6. A statement that based upon the evidence presented at the hearing, the Board may suspend or revoke the homeowner's, apprentices, journeymen, or master's license.

111.20.3 Determining vote. A decision to suspend or revoke a journeyman's or master's license shall require the concurring vote of at least three (3) of the five (5) members of the Board.

111.20.4 Decisions of the Board are final unless appealed. All rulings or decisions of the Board of Examiners shall become final and binding upon all parties thereto unless appealed to the Board of Building Appeals as provided for in the Building Code.

111.20.5 Enforcement stayed. If the decision of the Board of Examiners is appealed to the Board of Building Appeals, enforcement of any ruling or decision by the Board shall be stayed until the Board of Building Appeals has rendered its decision.

111.20.6 Authority of Board of Plumbing Examiners to levy fines.

1. Any person or entity that violates any provision of the Code shall be guilty of a Class A Misdemeanor. The Board of Examiners for Master Plumbers, Master Drainlayers, and Journeyman Plumbers (Board) shall have the authority to take disciplinary action as set out in the Code, and/or to impose civil penalties, of not less than $5.00 and not to exceed one thousand dollars ($1,000.00), per offense, if the Board finds, after such notice to the individual and a hearing on the matter, that the individual or entity has violated any provisions of the Code. In determining the amount of penalty to be imposed, the Board may consider both any mitigating circumstances and severity of the violation in relation to the deterrent value of the fine.

Any final order imposing a civil penalty is subject to appeal or review as specified in Section 110.0. Payment of a civil penalty shall be made within (30) thirty days after the decision of the Board, pending an appeal. Failure to pay a civil penalty by any person licensed under this Code shall be grounds for non-renewal or denial of reinstatement of a license. In addition, action will be taken against any bonds which may exist to obtain payment of civil penalty.

111.21 Hardship Clause. In the event of a loss of a Master Licensee to a company employing tradesmen licensed in the City of Saint Louis, through no fault of that company, a licensed Journeyman of the trade of the absent Master Licensee; or in the event of the lass of a Master Drainlayer to a company through no fault of that company, a person who would otherwise be eligible to qualify as a Master Drainlayer in the trade of the absent Master Drainlayer; and who shall be a full-time employee of that company, shall be designated as an Interim Master after meeting all bonding and insurance requirements. That company may operate under an Interim Master, who will have the same rights, responsibilities and standing of a Master in that trade, for a period of not more than one (1) year from the date of the hardship.

The Code Official shall determine judgment of fault. Disagreement of judgment may be appealed to the Board of Examiners who shall hold an emergency hearing no later than fourteen (14) calendar days following the date the appeal is received by the Board Secretary. The decision of the Board involving a hardship clause is appealable in the same manner as other decisions of the Board. Additional appeals may be made pursuant to the procedures in Section 110 of this Code.

SECTION 112
BOARD OF EXAMINERS FOR SPRINKLER SYSTEM CONTRACTORS

112.1 How constituted. The Mayor, with the approval of the Board of Aldermen, shall appoint one (1) licensed employing sprinkler contractor, one (1) registered professional engineer with experience in fire suppression sprinkler system design and one (1) licensed journeyman sprinkler fitter. Each of whom shall be a United States Citizen, and each of whom shall have been actively engaged at the trade or business of sprinkler fitting for five (5) years in the Saint Louis metropolitan area. These three members, together with the Fire Marshal or the Fire Marshal's appointed representative, and the Building Commissioner or the Building Commissioner's appointed representative, shall constitute the Board of Examiners.

112.2 Term of office, compensation. The members of the Board of Examiners, except the Fire Marshal or the Fire Marshal's appointed representative, and the Building Commissioner or the Building Commissioner's duly appointed representative, shall hold office for a term of four (4) years or until their successors are duly qualified, unless removed by the Mayor. They shall, except for the Fire Marshal or the Fire Marshal's appointed representative, and the Building Commissioner or the Building Commissioner's duly appointed representative, receive compensation for their services, as provided by separate ordinance on a per-meeting basis.

112.3 Meetings. Three (3) members of the Board in attendance shall constitute a quorum. An affirmative vote of three (3) board members is necessary for the approval of any motion. The Board shall elect one of its members to be the chairman. Suitable quarters for the use of the Board of Examiners shall be provided by the Building Division.

112.4 Powers and duties of the Board of Examiners. It shall be the duty of the Board of Examiners to meet as often as necessary to: hear and determine any charges or complaints which may be lawfully made against any licensed sprinkler contractor or licensed journeyman sprinkler fitter; approve apprentice applications; and transact any other lawful business of the Board. Meetings may be held at the request of the chairman of the board. Suitable quarters for the use of the Board of Examiners shall be provided.

1. Administration - The Board of Examiners shall receive applications and after review they shall approve or deny them based on Sections 112.8, 112.9 and 112.10. Test - The Board of Examiners shall prescribe the administration, form, and content of tests for journeyman sprinkler fitters and sprinkler fitter contractors and the form and content of licenses as described herein. The Board of Examiners shall also determine the passing grade for each test.

2. Complaints - All complaints by citizens concerning sprinkler fitting procedures or rules and regulations shall be made to the Board of Examiners in writing. After a thorough investigation, the Board shall respond in writing to each complaint.

3. Adoption of Rules - The Board of Examiners shall adopt rules and regulations, when and as required at the discretion of the Board, consistent with the provisions of this ordinance and the laws of the City of Saint Louis, related to the Board's powers and duties as herein stated. Such rules and regulations adopted by the Board shall be posted in the Section of Plumbing Regulations and Inspections for two weeks prior to becoming effective.

4. Inspection - Order the inspection of any sprinkler system whenever deemed necessary for the public safety.

5. Revocation/Suspension of Licenses - After investigation and hearings in accordance with Section 112.11, the Board may revoke or suspend any license that it has issued.

6. The Board shall, pursuant to the regulations and standards herein set forth, determine the qualifications of and provide for the examining, licensing, registration and/or certification of applicants who meet the qualifications and successfully pass the appropriate examinations, if required, under this Code. Evidence of license "The License" shall be provided to those who meet the qualifications and successfully pass the appropriate examination, or successfully meet all requirements of renewal of the license. This evidence of license "The License" shall remain the property of St. Louis

City and shall be surrendered immediately when demanded under conditions listed elsewhere in this document.

112.4.1 Inactive license. Any licensed person who is not working at his/her licensed trade and who desires to retain his/her license may do so by notifying the Board of Sprinkler Fitter Examiners that he/she wishes to be placed in inactive status. Such notice shall be in writing and shall state that the license holder is not working at his/her licensed trade, wishes to be placed in inactive status, understands that he/she is prohibited from working while inactive and agrees to notify the Board to activate his/her license prior to resuming work. It shall be a Violation of this Code for a license holder to perform work in his/her license category while in inactive status remain the property of St. Louis City and shall be surrendered immediately when demanded under conditions listed elsewhere in this document.

The Board shall respond in writing to the license holder in each inactivation or reactivation action and each such action shall be noted in the Board minutes. An inactive license shall be issued stating the license number and type, which is inactive. This inactive license shall be valid for a period of ten (10) years. Three (3) months prior to the expiration date, the department shall notify the holder at his last known address, the date that his inactive license will expire so that it can be renewed at the holder's request and payment of fees and other requirements of the Board. It is the responsibility of the Inactive License holder to notify the Board of any license change or change in address. Maintenance of any other license will be equivalent to notifying the Board of address change. License holders in inactive status, who renew their licenses, are not required to accrue continuing education course hours, as a condition of renewal. However, they are required to accrue the minimum continuing education hours for any prior year or any part thereof in which their license was active.

112.5 Secretary of the board, duties. The Code Official or his duly appointed representative shall act as Secretary to the Board of Examiners. The Secretary of the Board shall be nonvoting. It shall be the duty of the Secretary to:

1. Keep full and complete records of the proceedings of said Board;

2. Keep a file of the name, residence and place of business of every licensed person engaged in or working at the business of sprinkler fitting in the City of Saint Louis (these records shall be updated within ninety days of the renewal period stated in Section 112.6).

3. Give all applicants for examination a written notice of the date and place of examination. The Secretary shall give the applicant an informational letter on examination procedures with an outline of suggested study for the examination applied for;

4. Return all incomplete applications to the applicants;

5. All records shall be open to supervised public inspection during normal working hours, subject to staff availability. Test questions and answers shall not be open to the public.

112.5 Renewal date for licenses. The renewal of all licenses for sprinkler contractors and journeyman sprinkler fitters shall be due on one date, December 31, 2023, and every three (3) years thereafter.

1. A person applying for renewal of a license, registration or certification may file his/her application starting September first prior to the expiration but after the last day of the month of 14 January after the license, registration or certificate expires. A person applying for such renewal, prior to its expiration, shall file only a new application form, surety bond, and pay the fee(s) required under this Code.

2. Upon written application and for good cause shown, waivers or extension of time of the credit hour or reporting requirements of this Code may be granted by the Board in individual cases or classes of cases involving hardship or extenuating circumstances. Extensions granted by the Board may be conditioned on the payment of a late filing fee of thirty ($30) dollars. If the Board grants an extension; the license expiration date shall be extended to the date set by the Board for completion of the credit hour and reporting requirements.

Licenses obtained between renewal dates. Any new license issued more than thirty days prior to the renewal date shall expire on the renewal date. There shall be prorating of license fees.

112.6.1 Failure of sprinkler contractor to renew. The failure of any sprinkler contractor to renew their license during the grace period shall terminate their license, and no permit for doing work under this or any other ordinance of the City of Saint Louis shall be issued them until after they have obtained a new license following re-application and re-testing, and they shall be disqualified from carrying on any work authorized

to be done under any permit theretofore issued to them or any job unfinished at the date of termination of their license.

112.7 Inactive license. Any licensed person who is not working at his/her licensed trade and who desires to retain his/her license may do so by notifying the Board of Plumbing Examiners that he/she wishes to be placed in inactive status. Such notice shall be in writing and shall state that the license holder is not working at his/her licensed trade, wishes to be placed in inactive status, understands that he/she is prohibited from working while inactive and agrees to notify the Board to activate his/her license prior to resuming work. It shall be a Violation of this Code for a license holder to perform work in his/her license category while in inactive status. The license holder must maintain an active journeyman sprinkler fitter license.

112.8 License as a sprinkler contractor. An applicant shall successfully complete all of the following requirements in order to receive a license as a sprinkler contractor:

1. Applicant shall be twenty-one (21) years of age.

2. Applicant shall complete application provided by the Section of Plumbing Regulations and Inspections and pay the application fee shown in Table 111.

3. Applicant shall have served a five (5) year apprenticeship and have five (5) years' experience as a certified sprinkler fitter or the applicant shall have ten (10) years' experience as a certified sprinkler fitter. (Five years of experience consists of a minimum of 8,500 working hours with a maximum of 1,700 working hours considered for any one year.) Equivalent training and experience shall also be considered. Equivalent training and experience shall mean a degree in engineering from an accredited university in which the applicant shall have received training in the design of sprinkler system design, planning and installation of same, and has had three (3) years of experience in the design, planning and installation of sprinkler systems, and must be a registered professional engineer licensed to practice in the State of Missouri.

4. Applicant's credentials shall be reviewed by the Board of Examiners as to qualifications and experience. The applicant shall provide proof of knowledge, training and experience through transcripts from educational institutions, apprenticeship agreements, reference letters from employers and other documents as requested by the Board of Examiners.

5. The Secretary of the Board shall arrange a testing date with the approved applicant. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant shall schedule the test within ninety (90) days of approval. The applicant is responsible for all testing fees.

6. Applicant shall successfully complete the written examination and receive a passing grade on all parts of the examination.

7. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license. Applicants that have failed the examination for the first time shall be notified that they may schedule a retake of the examination after ninety (90) days. Applicants that have failed the examination for a second time shall be notified that they may schedule a re-take of the examination after an additional one hundred eighty (180) days. Applicants that have failed the examination for a third time shall wait a minimum of twelve (12) months before re-application and re-testing. The applicant is responsible for all application and testing fees.

8. Successful applicant shall have a certificate of liability insurance for bodily injury and property damage in the amount of at least one million dollars ($1,000,000) naming the applicant as an additionally insured, an approved surety bond in the amount of Twenty-Five Thousand Dollars ($25,000.00), and the license fee required by Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a sprinkler contractor. No journeyman sprinkler fitter shall be allowed to hold a sprinkler contractor license. When a journeyman sprinkler fitter qualifies as a sprinkler contractor, the journeyman must relinquish the journeyman sprinkler fitter's license to the Board of Sprinkler Fitters Examiners before a sprinkler contractor's license can be issued.

112.9 License as a journeyman sprinkler fitter. An applicant shall successfully complete all of the following requirements in order to receive a license as a journeyman sprinkler fitter:

1. Applicant shall be twenty-one (21) years of age.

2. Applicant shall complete application provided by the Section of Plumbing Regulations and Inspections and pay the application fee shown in Table 111.

3. Applicant shall have a minimum of five (5) years' experience as an apprentice in the installation of sprinkler systems under the direct personal and immediate supervision of a licensed journeyman sprinkler fitter or licensed sprinkler contractor in the City of St. Louis, or have a license issued by another licensing authority in another jurisdiction, or equivalent training and experience prior to the date of the examination. (Five years of experience consists of a minimum of 8,500 hours with a maximum of 2,000 working hours considered for any one year.) The applicant shall receive a one (1) year credit toward their five (5) year apprenticeship training when presenting a certificate of completion from a trade or technical school recognized by the Board of Examiners. Any applicant living within one hundred (100) miles of the limits of the City of Saint Louis must have held a valid apprentice sprinkler fitter registration for five (5) years.

4. The applicant shall provide proof of knowledge, training and experience through transcripts from educational institutions, apprenticeship agreements, letters of reference from employers and any other documents requested by the Board of Examiners.

5. Applicant's qualifications shall be reviewed by the Board of Examiners for approval to take the written examination.

6. The Secretary of the Board shall arrange a testing date with the applicant. The Secretary shall also give the applicant an informational letter on the examination procedures with an outline of suggested study for the examination. The applicant shall schedule the test within ninety (90) days of approval. The applicant is responsible for all testing fees.

7. Applicant shall successfully complete the written examination and receive a passing grade on all parts of the examination.

8. Applicant shall be notified in writing by the Secretary of the Board of the examination results. Applicants that pass shall be notified to come to the Section of Plumbing Regulations and Inspection and obtain their license. Applicants that have failed the examination for the first time shall be notified that they may schedule a retake of the examination after ninety (90) days. Applicants that have failed the examination for a second time shall be notified that they may schedule a re-take of the examination after an additional one hundred eighty (180) days. Applicants that have failed the examination for a third time shall wait a minimum of twelve (12) months before re-application and re-testing. The applicant is responsible for all application and testing fees.

9. Successful applicant shall have the license fee required in Table 111 to the Section of Plumbing Regulations and Inspections in order to be issued a license as a journeyman sprinkler fitter.

112.10 Registration as an apprentice sprinkler fitter. Every applicant learning the business or trade of sprinkler fitting within the City of Saint Louis, shall be registered by the Board of Examiners and shall receive a registration from the Board of Examiners with "Apprentice" plainly marked on it, their name and the date issued and a color or digital picture. The registration fee for an Apprentice shall be as prescribed in Table 111 and the registration will be issued for a five (5) year period.

The apprentice's employer shall furnish a notarized letter to the Board of Examiners naming all journeyman sprinkler fitters and all apprentice sprinkler fitters in his/her employment. The sprinkler system contractor shall employ at least one licensed journeyman sprinkler fitter for each apprentice sprinkler fitter.

An apprentice who is undergoing an apprenticeship or course of training for the purpose of learning the trade of sprinkler fitting shall perform no work regulated by this Code or its amendments thereto, except as an assistant, under the direct personal and immediate supervision of a journeyman sprinkler fitter or sprinkler contractor licensed under the terms and provisions of this Code.

The apprentice registration shall not be renewed. Upon written application, the apprentice shall be allowed to be extended his registration for a maximum of six (6) months if the apprentice has been approved to take the journeyman sprinkler fitter examination as prescribed in Section 112.8. It shall be mandatory for an Apprentice sprinkler fitter, on the completion of their five (5) year training period, to make application for the journeyman sprinkler fitter's examination.

112.11 Powers of the Board to suspend or revoke licenses. Upon receipt of a written complaint to the Board filed by the Building Commissioner or any aggrieved person, or upon the Board's own motion, the Board shall make an investigation into the complaint which it may deem necessary and thereafter shall conduct a hearing upon such complaint.

112.11.1 Reasons for suspension or revocation of licenses. The following offenses shall be cause for a hearing on a sprinkler contractor's or journeyman sprinkler fitter's license:

1. If the license holder has obtained same by fraud or misrepresentation, that license shall be immediately revoked;

2. The license holder has intentionally violated any of the provisions of this section or any other portion of this Code or the fire code;

3. The license holder is found to be negligent, unskilled and unfaithful in their work or found to be unfit, incompetent or untrustworthy in the work of sprinkler fitting;

4. The license holder has been convicted of a crime or of violating an Ordinance involving moral turpitude;

5. The licensed sprinkler contractor has intentionally employed an unlicensed person to perform sprinkler fitting work covered by this Code;

6. The licensed sprinkler contractor has directed apprentices to work without the supervision of a licensed journeyman sprinkler fitter.

7. The licensed sprinkler contractor has obtained permits for individuals who are not in their employ and under their supervision.

8. Disciplinary action against the holder of a license or certificate of authority, or other right to practice any profession regulated by this chapter granted by another state, territory, federal agency, or country upon grounds for which revocation or suspension is authorized in this Code;

9. The suspension or revocation of a Contractor, Master or Journeyman license by any jurisdiction;

10. A revoked license, registration, or certification may be reinstated by order of the Board only upon application and examination, if required, and in the same manner as provided for new applicants.

11. Upon suspension and or revocation the license holder is to surrender his/her license(s) at the close of the Board of Sprinkler Fitter Examiners hearing.

112.11.2 Notice of hearing. Within seventy-five (75) calendar days after the filing of a written complaint at the Board meeting, a notice of hearing shall be sent to the license holder. The notice shall be served to the last known address by certified mail, return receipt requested, at least ten (10) days prior to any scheduled hearing and shall include:

1. A statement of the time, place and nature of the hearing;

2. A reference to the particular section(s) of the code and rules involved;

3. A short, plain statement of the complaint and a statement of the issues before the Board;

4. A statement that the nature of the proceeding before the Board will be a formal inquiry into the complaint, at which time an opportunity will be afforded the individual or contractor to respond to the allegations in the complaint by his/her testimony, the testimony of witnesses, or by documentary evidence;

5. A statement that the journeyman sprinkler fitter or sprinkler contractor has a right to be represented by legal counsel; and

6. A statement that, based upon the evidence presented at the hearing, the Board may suspend or revoke the apprentice's, journeyman sprinkler fitter's or sprinkler contractor's license.

112.11.3 Determining vote. A decision to suspend or revoke an apprentice's, a journeyman sprinkler fitter's or a sprinkler contractor's license shall require the concurring vote of at least three (3) members of the Board.

112.11.4 Decisions of the Board are final unless appealed. All rulings or decisions of the Board of Examiners shall become final and binding upon all parties thereto unless appealed to the Board of Building Appeals as provided for in the Building Code.

112.11.5 Enforcement stayed. If the decision of the Board of Examiners is appealed to the Board of Building Appeals, enforcement of any ruling or decision by the Board shall be stayed until the Board of Building Appeals has rendered its decision.

112.11.6 Authority of Board of Sprinkler Fitter Examiners to levy fines.

1. Any person or entity that violates any provision of the Code shall be guilty of a Class A Misdemeanor. The Board of Sprinkler Fitters Examiners (Board) shall have the authority to take disciplinary action as set out in the Code, and/or to impose civil penalties, of not less than $5.00 and not to exceed one thousand dollars ($1,000.00), per offense, if the Board finds, after such notice to the individual and a hearing on the matter, that the individual or entity has violated any provisions of the Code. In determining the amount of penalty to

be imposed, the Board may consider both any mitigating circumstances and severity of the violation in relation to the deterrent value of the fine.

Any final order imposing a civil penalty is subject to appeal or review as specified in Section 110.0.

Payment of a civil penalty shall be made within (30) thirty days after the decision of the Board, pending an appeal. Failure to pay a civil penalty by any person licensed under this Code shall be grounds for non-renewal or denial of reinstatement of a license. In addition, action will be taken against any bonds which may exist to obtain payment of civil penalty.

112.12 Hardship Clause. In the event of a loss of a Master Licensee to a company employing tradesmen licensed in the City of Saint Louis, through no fault of that company, a licensed Journeyman of the trade of the absent Master Licensee and who shall be a full-time employee of that company, shall be designated as an Interim Master after meeting all bonding and insurance requirements. That company may operate under an Interim Master, who will have the same rights, responsibilities and standing of a Master in that trade, for a period of not more than one (1) year from the date of the hardship. The Code Official shall determine judgment of fault. Disagreement of judgment may be appealed to the Board of Examiners who shall hold an emergency hearing no later than fourteen (14) calendar days following the date the appeal is received by the Board Secretary. The decision of the Board involving a hardship clause is appealable in the same manner as other decisions of the Board. Additional appeals may be made pursuant to the procedures in Section 110 of this Code.

SECTION 113
COMMITTEE OF PLUMBING REVIEW

113.1 How constituted. The Mayor, with the approval of the Board of Aldermen, shall appoint one (1) Registered Professional Engineer or a practicing Plumbing Designer holding a Certified in Plumbing Design certificate, CPD, issued by the American Society of Plumbing Engineers who has actually engaged in the design of plumbing or sanitary or sewer systems may be appointed as a substitute for the position held by the Registered Engineer engaged in the design of plumbing and sanitary systems, one (1) licensed City of St. Louis Master Plumber, one (1) licensed City of St. Louis Master Drainlayer, one (1) licensed City of St. Louis Journeyman Plumber, and one (1) member at large. Each of whom shall a United States Citizen, and each of whom shall have been actively engaged at the trade or business of plumbing systems for five (5) years in the Saint Louis metropolitan area, except for the member at large. These five members, together with the Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative, shall constitute the Committee of Plumbing Review.

113.2 Term of office, compensation. The members of the Committee of Plumbing Review, except the Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative, shall hold office for a term of four (4) years or until their successors are duly qualified, unless removed by the Mayor. They shall, except for the Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative, receive compensation for their services, as provided by separate ordinance on a per-meeting basis.

113.3 Meetings. Three (3) members of the Committee in attendance shall constitute a quorum. A majority vote of the board members present is necessary for the approval of any motion. The Committee shall elect one of its members to be the chairman on an annual basis. The Plumbing Supervisor or the Plumbing Supervisor's duly appointed representative shall be the Committee's secretary. Suitable quarters for the use of the Committee of Plumbing Review shall be provided by the Building Division. The Committee shall meet a minimum of three (3) times per year. Additional meetings maybe called at the request of any Committee member.

113.4 Powers and duties of the Committee of Plumbing Review. It shall be the duty of the Committee of Plumbing Review to consider all proposed changes in this Code relative to the use, adoption, or incorporation of any plumbing materials, or the method of construction or installation of plumbing or when referred to the Committee by the code official. The Committee shall consider any petition for the adoption or incorporation of any plumbing codes, materials, or methods of construction or installation of plumbing referred to the Committee by the Board of Building Code Review. The Committee shall accept research, approval, investigations, and report reviews when referred by the code official for assistance. The Committee of Plumbing Review shall review new and/or unique plumbing systems, methods of piping, appurtenances, and appliances and make recommendations to the Authority Having Jurisdiction for the purpose of finding accept-

able such new and/or unique plumbing systems, piping, appurtenances and/or appliances acceptable for use under this Code.

113.5 Secretary of the board, duties. It shall be the duty of the Secretary to:

1. Prepare and distribute the agenda to all Committee members for all upcoming meetings.

2. Keep full and complete records of the proceedings of said Committee.

3. All records shall be open to supervised public inspection during normal working hours, subject to staff availability.

SECTION 114
BACKFLOW CERTIFICATION

114.1 General. The installation and annual testing of backflow prevention assemblies and devices shall be performed only by individuals that have been licensed for this specific work by the Section of Plumbing Regulations and Inspections.

114.2 Master plumbers and journeyman plumbers. A licensed plumbing contractor shall have a licensed master plumber or licensed journeyman plumber in possession of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 to install and/or test backflow prevention assemblies and devices on any installation other than dedicated fire sprinkler and suppression systems that requires a licensed Sprinkler Contractor to install and test.

An applicant for a Backflow Prevention Tester Certification shall have the following qualifications:

1. Be certified by the Missouri Department of Natural Resources as a Backflow Prevention Tester.

2. Must be licensed, certified and/or registered as a Master Plumber, Journeyman Plumber, Master Pipefitter, Journeyman Pipefitter, Master Sprinkler Fitter, or Journeyman Sprinkler Fitter under the foregoing provisions of this Code.

NOTE: EVERY BACKFLOW PREVENTION CERTIFICATE LICENSE NUMBER SHALL INDICATE THE TYPE (S) OF WATER SYSTEMS FOR WHICH THE HOLDER IS QUALIFIED.

114.2.1 Validation of master plumber or journeyman plumber licenses. Upon application for or renewal of a master plumber or journeyman plumber license, the master plumber or journeyman plumber shall present proof of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 certification to the plumbing section and the master plumber or journeyman plumber license will be notated as complying with Section 114.2.

114.2.2 The installation and initial test of backflow prevention assemblies and devices shall be performed in accordance with this Code and the standards and procedures established by the Missouri Department of Natural Resources, Public Drinking Water Program by persons who are properly licensed pursuant to this Code who also possess a current Backflow Prevention Tester Certificate issued by the Missouri Department of Natural Resources.

Clarification:

The Plumbing Code Ordinance requires the installer to hold the appropriate license (Plumber, Pipefitter, or Sprinkler Fitter) to install a Backflow Assembly and Device. The testing, repair, replacement or retrofit installation of existing Backflow Prevention Assemblies and Devices for Plumbing Systems, and Process Piping systems may be performed by Journeymen Plumbers, Journeymen Pipefitters, Master Plumbers, Master Pipefitters licensed under this Code who also possesses a current Backflow Prevention Tester Certificate issued by the Missouri Department of Natural Resources.

Clarification:

The Plumbing Code Ordnance requires one license and one certification to test and repair Backflow Assemblies and Devices.

To test Backflow assemblies and devices the Plumbing Code Ordinance requires the tester to hold the appropriate license (Plumber, Pipefitter, Sprinkler Fitter) as well as be certified by the MODNR as a Backflow Tester and the certification be registered under the plumbing Code Ordinance. All testing must be performed under the supervision of an appropriately licensed master.

114.3 Sprinkler fitter contractors and journeyman sprinkler fitters. A licensed Master Sprinkler fitter employing a licensed journeyman sprinkler fitter in possession of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 may install and/or test backflow prevention assemblies and devices on any sprinkler system installation. The licensed sprinkler contractor is authorized to perform work on any sprinkler system up to and including the backflow assemblies and devices and the

branch pipe in which the backflow assemblies and devices is installed. If the sprinkler system originates from a separate water main tap, the licensed sprinkler contractor may work on the line up to but not including the tap.

114.3.1 Validation of journeyman sprinkler fitter licenses. Upon application for or renewal of a journeyman sprinkler fitter license, the journeyman sprinkler fitter shall present proof of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 certification to the plumbing section and the journeyman sprinkler fitter license will be notated as complying with Section 114.3.

114.4 Master Pipefitter and journeyman pipefitters. A Master Pipefitter employing a licensed journeyman pipefitter in possession of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 may use that employee to install and/or test backflow prevention assemblies and devices on any mechanical system installation. The licensed journeyman pipefitter employed by the Master Pipefitter is authorized to perform work on the backflow prevention device serving any mechanical system. A Master Pipefitter licensed by the Plumbing Section of the Division of Buildings and Inspections is authorized to work on process piping up to the backflow prevention assemblies and devices and the branch pipe in which the backflow assemblies and devices are installed.

114.4.1 Journeyman pipefitter license. An individual in possession of a valid journeyman mechanical pipefitter license issued by the Mechanical Section of the Division of Buildings and Inspections may obtain a journeyman pipefitter license from the Plumbing Section upon completion of a written application, proof of possessing the journeyman mechanical pipefitter license, a 3/4 inch by 3/4- inch color photograph and/or a digital picture and payment of the application and license fee stated in Table 111.

114.4.2 Validation of journeyman pipefitter licenses. Upon application for or renewal of a Master Pipefitter or a journeyman pipefitter license, the master pipefitter or journeyman pipefitter shall present proof of a valid Missouri Department of Natural Resources Public Drinking Water Certification for Backflow Prevention Assembly Tester Rule 10 CSR 60-11.010 certification to the plumbing section and the journeyman pipefitter license will be notated as complying with Section 114.4.

114.4.3 Backflow Prevention Assembly and Devices - Registration, Maintenance And Testing Required.

1. Backflow prevention assembly and devices installed in accordance with this Code shall be tested and certified as to proper operation at the time of installation and each year thereafter by persons who are properly licensed and certified pursuant to this Code. At the time of installation, a permanent tag shall be attached to the backflow prevention assembly and device on which shall be recorded the permit number, the tester's name, registration number, and the date tested. Each subsequent test shall be recorded on the tag in like manner. This tag shall remain attached to the device until such time as the device is replaced or retired. Tags shall be made of materials sufficiently durable to withstand the environment in which the device is installed. The water user, whether water originates from a commercial water supply system or shared or individual well, shall maintain all backflow prevention assembles and devices in proper working condition.

2. The installation testing and maintenance of backflow prevention devices shall be performed in accordance with this Code. In addition, regulations, requirements, standards and procedures established by the Missouri Department of Natural Resources, Public Drinking Water Program become a requirement of this Code.

3. The results of such tests shall be submitted to the Office of Plumbing and Sewer Inspection, within thirty (30) days after making such test, on a form which is acceptable to the Code Official and shall be completed and signed by the tester. A copy shall also be provided, within thirty (30) days, to the owner, and water customer if different than the owner and if records for the device are not maintained by St. Louis City, the supplier of water.

4. Where the supplier of water has contracted with St. Louis City to maintain records of backflow testing required by state law, the Office of Plumbing and Sewer Inspection shall maintain all records of tests performed in accordance with the Code requirements and notify all water customers and device owners when retesting is required, send a list of licensed and bonded Masters with such notification, issue violation notices for failure to perform or register the required test, notify the supplier of water and request termination of the potable water connection of any water customer and owner of a device who shall fail to have any required test performed. If the device owner receives

water from a shared or individual well, the Office of Plumbing and Sewer Inspection shall maintain all records of tests performed in accordance with the Code requirements, notify all device owners when re-testing is required, send a list of licensed and bonded Master's with such notification, and issue violation notices for failure to perform or register the required test.

5. The fee for such notification, record maintenance and registration shall be the rate specified in 107.11.3 as amended. Fees shall be paid by the employing Master in a manner approved by the Code Official, at the time the test report is submitted by the device tester to the Office of Plumbing and Sewer Inspection.

SECTION 115
REPLACEMENT OF RESIDENTIAL DISHWASHER - REGISTRATION AND CERTIFICATION REQUIRED.

115.1 Residential Dishwashers Replaced. Residential Dishwashers shall be replaced by a licensed Master Plumber or Licensed Journeyman Plumber in accordance with this Code and shall be certified as to proper installation at the time of replacement. At the time of replacement, a permanent tag shall be attached to the dishwasher on which shall be recorded the Certificate of Replacement number, the installer's name, license number, and the date installed. This tag shall remain attached to the dishwasher until such time as the dishwasher is replaced or retired and shall be made of materials sufficiently durable to withstand the environment in which the device is installed.

1. The results of such replacement shall be submitted to the Office of Plumbing and Sewer Inspection within fifteen (15) days after making such replacement and test, on a form acceptable to the Code Official and shall be completed and signed by the Master Plumber. A Certificate of Completion shall be provided by the Master Plumber, within fifteen (15) days of completion of the replacement, to the owner.

2. The Office of Plumbing and Sewer Inspection shall maintain all records of all Certificates of Replacement in accordance with the Code requirements and issue violation notices for failure to perform or register the required Certificate of Replacement.

3. The fee for such notification, record maintenance and registration shall be specified in 107.11.3 as amended. Fees shall be paid by the employing Master in a manner approved by the Code Official.

4. Residential Dishwasher Replacement under a Homeowner Permit requires an inspection and appropriate fees as specified in 107.11.3 as amended. The homeowner must make all dishwasher connections visible at the time of inspection.

SECTION 116
INSTALLATIONS AND INITIAL TEST OF BACKFLOW PREVENTION ASSEMBLY AND DEVICES.

116.1 General. The installation and initial test of backflow prevention assembly and devices shall be performed in accordance with this Code and the standards and procedures established by the Missouri Department of Natural Resources, Public Drinking Water Program by persons who are properly licensed pursuant to this Code and who also possess a current Backflow Prevention Device Tester Certificate issued under the Standards and Procedures established by the Missouri Department of Natural Resources and registered with the Code Official.

The testing, repair, replacement or retrofit installation of existing Backflow Prevention assembly and Devices for Plumbing systems, and Process Piping systems may be performed by Journeyman Plumbers, Journeyman Pipefitters, Master Plumbers, or Master Pipefitters licensed under this Code who also possess a current Backflow Prevention Device Tester Certificate issued under the Standards and Procedures established by the Missouri Department of Natural Resources, and registered with the Code Official. All testing must be performed under the supervision of an appropriately licensed and certified Master.

Clarification:

To test and repair Backflow assemblies the Plumbing Code Ordinance requires the tester to hold the appropriate license (Plumber, Pipefitter, Sprinkler Fitter) as well as be certified by the MoDNR as a Backflow tester and that certification be registered and a Backflow Tester license issued under the Plumbing Code Ordinance. All testing must be performed under the supervision of an appropriately licensed Master.

SECTION 117
RESIDENTIAL MULTI-PURPOSE FIRE PROTECTION SYSTEMS INSTALLERS

117.1 RESIDENTIAL MULTI-PURPOSE FIRE PROTECTION SYSTEMS INSTALLERS FOR ONE- AND TWO-FAMILY DWELLINGS. The installation

of Residential Multi-Purpose Fire Protection Systems shall be performed in accordance with this Code and the standards and procedures established by the St. Louis City Board of Plumbing Examiners, by persons who are properly licensed pursuant to this Code and possess a current certification for ASSE Series 7000 (current edition), Professional Qualifications Standard for Residential Potable Water Fire Protection System Installers & Residential Fire Protection System Inspectors for One- and Two-Family Dwellings issued by American Society of Sanitary Engineering (ASSE) or other approved third-party certification agencies with similar or more stringent qualifications.

The installation documents shall contain the following statement signed by the ASSE Series 7000 Certified or equivalent Master Plumber:

A) " I certify that I personally prepared and/or directly supervised an ASSE Series 7000 Certified Journeyman in preparation of the installation documents. I assume full responsibility for document accuracy."

B) Master Plumber Signature:

Master Plumber STL. City LIC #:

ASSE Series 7000 Certification #:

The testing, repair, replacement or retrofit installation of existing Residential Multi-Purpose Fire Protection Systems may be performed by Journeyman Plumbers or Master Plumbers licensed under this Code who also possess a current certification for ASSE Series 7000 (current edition), Professional Qualifications Standard for Residential Potable Water Fire Protection System Installers & Residential Fire Protection System Inspectors for One and Two Family Dwellings issued by American Society of Sanitary Engineering (ASSE) or other approved third party certification agencies with similar or more stringent qualifications.

To install Residential Multi-Purpose Fire Protection Systems the Plumbing Code Ordinance requires the installer to hold the appropriate license (Plumber or Master Plumber) as well as be certified by American Society of Sanitary Engineering (ASSE) or other approved third party certification agencies with similar or more stringent qualifications as an ASSE Series 7000 (current edition), Professional Qualifications Standard for Residential Fire Protection System Installers & Residential Fire Protection System Inspectors for One- and Two-Family dwellings and that certification be registered with the code official. All installations must be performed under the supervision of an appropriately licensed Master Plumber.

SECTION 118
USE AND RE-USE OF NON-POTABLE WATER WITHIN OR UPON A PREMISE

Clarification of requirements of other sections of this Code.

1. Grey water collected from plumbing drainage piping and used within a building for appropriate purposes i.e., water closets, urinals, trap primers, shall be installed as licensed and permitted by this Code by a licensed Master Plumber or a licensed Journeyman Plumber.

2. Reclaimed water delivered to a building site/ premises by a public reclaimed water distribution system's series of mains and appurtenances. The connection to that system, any treatment as needed, and the distribution of the reclaimed water, within the site shall be installed as licensed and permitted by this Code by a Licensed Master plumber, a licensed Journeyman Plumber or Master Drainlayer.

3. Rainwater collected from exterior downspouts to a collection container and the overflow from such container piped to a discharge point shall be installed as licensed and permitted by this Code by a Licensed Master Drainlayer.

Exception:

A) A Licensed Master Plumber or a licensed Journeyman Plumber may install any collection container within the property boundaries of the building.

B) For one and two family attached residential dwellings the homeowner is authorized to install a single tank of not more than sixty-five (65) gallons or a series of interconnected tanks, none of which is larger than sixty-five (65) gallons accumulating not more than two hundred (200) gallons.

4. Overflow authorized to discharge to public sewers and public waterways from all collection containers shall be piped as licensed and permitted by this Code by a licensed Master Drainlayer.

5. Any Rainwater drawn from a collection container or tank for use:

A) For plumbing devices and appurtenances shall be piped and installed as licensed and permitted by this Code by a licensed Master Plumber, Master Drainlayer, or a licensed Journeyman Plumber.

B) For stand-alone fire suppression, shall be used and installed as licensed and permitted by the Mechanical Code. The connection to the container and/or tank

shall be permitted by this Code by a licensed Master Sprinkler Fitter or licensed Journeyman Sprinkler Fitter.

C) For process piping shall be used and installed as licensed and permitted by the Mechanical Code. The connection to the container and/or tank shall be permitted by this Code by a licensed Master Pipe Fitter or licensed Pipe Fitter.

D) For irrigation, including the irrigation water piping, pumps and appurtenances, the connection to container or tank shall be used and installed as licensed and permitted by this Code. The connection to the container and/or tank shall be permitted by this Code by a licensed Master Plumber or a licensed Journeyman Plumber.

6. Any potable make-up water to any tank or container collecting storm water runoff, shall be protected by a backflow device or assembly per St. Louis City Plumbing Code and the potable water shall be piped and installed to that tank or container, as licensed and permitted by this Code by a licensed Master Plumber or a licensed Journeyman Plumber.

CHAPTER 2
DEFINITIONS

Chapter 2 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

203.0 - A -

Addition. Is defined as an increase in building area, aggregate floor area, height or number of stories of a structure.

Additional Inspection. An inspection which is not a required inspection as defined in this Code but which in the judgment of the Code Official is reasonably necessary to enforce this Code or as an inspection which is required as a result of unusual or complicated construction and/or is defined as an inspection which is made as a result of non-compliance, not ready, lockout etc. See Extra Inspection. Fees for additional inspections shall be as specified in Table 107.11.3.

Alteration. Any construction or renovation to an existing structure other than repair or addition.

204.0 - B -

Backflow Device Installed. When potable water is connected to the inlet side and a potential backflow hazard is present at the outlet side of a backflow device.

Bedroom. A room furnished with a bed and intended primarily for sleeping.

Board. Board of Examiners for Master Plumbers, Master Drainlayers and Journeyman Plumbers.

Board of Appeals. The Board of Building Appeals as defined in the Building Code.

Board of Registration. The Missouri Board for Architects, Professional Engineers, Professional Land Surveyors, and Landscape Architects.

Boiler. See Water Heater Boiler Building Classification. The arrangement adopted by the Authority Having Jurisdiction for the designation of buildings in classes according to occupancy.

Building Code. The Building Code adopted by the City of St. Louis.

Building Drain. That part of the lowest piping of a drainage system which receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys it to the building sewer beginning five (5) feet (1525 mm) outside the building wall, or five (5) feet (1525 mm) beyond plumbing appliances, appurtenances or equipment installed outside the walls of the building such as but not limited to grease, oil, and sand interceptors.

Building Trap. A device, fitting, or assembly of fittings installed in the building drain to prevent circulation of air between the drainage system of the building and the building sewer.

205.0 - C -

Central Use Facility(s). A restroom facility or facilities designed and sized to accommodate the total occupant load of the building, located within the distance required by the Code for maximum access and meeting the requirements of the Code within its use category.

Certified Backflow Assembly Tester. A person who is certified by the Missouri Department of Natural Resources as a Backflow Prevention Device Tester and possesses a Backflow Prevention Device Tester Certificate issued pursuant to this Code for the particular application involved.

Certified in Plumbing Design (CPD). A person who has successfully completed the CPD examination as a part of the international certification program for

engineers and designers of plumbing systems and so designated by the American Society of Plumbing Engineers.

Code Authority/Code Official. The Director of Public Works of St. Louis City, Missouri or his duly authorized representative.

Committee. The Committee of Plumbing Code Review as created herein.

Containment. (Cross-connection) Protection of the public water system is obtained by installation of an approved backflow prevention assembly or air-gap separation at the user connection from the main service line(s).

Cross-Connection. Any actual or potential connection or structural arrangement, between a public or private potable water supply system and any other source or system through which it is possible to introduce into any part of the private or public water system any used water, industrial fluid, gas or substance other than the intended potable water with which the system is supplied. By-pass arrangements, jumper connections, removable sections, swivel or change-over devices through which or because of which, backflow can or may occur are considered to be cross-connections.

Cross-Connection, Direct. A continuous, enclosed interconnection or cross-connection to allow the flow of fluid from one system to the other.

Cross-Connection, Indirect. A potential cross-connection such that the interconnection is not continuously enclosed and the completion of the cross-connection depends on the occurrence of one or more abnormal conditions.

Cross-Connection, Isolation. Protection of the user water system by installation of an approved backflow prevention device or assembly at the point of connection between the user's water system and any device, equipment, appliance, appurtenance assembly or area which might constitute a real or potential cross-connection.

Customer. Any person who receives water from a public water system, except those persons receiving water for resale.

Customer Service Line. The pipeline from the public water system to the first tap, fixture, receptacle or other point of customer water use or to the first auxiliary water system or pipeline branch in a building.

Customer Water System. All piping, fixtures and appurtenances, including auxiliary water systems used by a customer to convey water on his/her premises.

206.0 - D -

Dead End. That part or branch of a drainage piping system, which is without a free circulation of air.

Direct Cross-Connection. A continuous, enclosed interconnection or cross-connection to allow the flow of fluid from one system to the other.

Disaster. A disaster shall include but not necessarily be limited to flood, tornado, severe storm, earthquake or similar type event. The Code Official shall make the determination whether an event shall be declared a disaster.

Downspout. The rain leader from the roof to the building storm drain, combined building sewer, or other means of disposal located outside of the building, or, the storm leader from the bridge drain to the storm drain, combined building sewer below ground, or the storm leader from the bridge drain to the storm drain, combined building sewer below ground.

207.0 - E -

Emergency. An event or occasion that requires immediate action in order to preserve or restore the public peace, health, safety or welfare.

Employee. A person, who produces a product or service, employed by another usually for wages or salary in a position below the executive level.

Engineer. An engineer registered or licensed to practice professional engineering in Missouri in accordance with the professional registration laws of the state of Missouri.

Extra Inspection. Is defined as an inspection, which is required as a result of unusual or complicated construction and/or is defined as an inspection, which is made as a result of non-compliance, not ready, lockout etc. An inspection, which is not a required inspection as defined in this Code but which in the judgment of the Code Official, is reasonably necessary due to non-compliance with Code requirements, or work not ready or accessible for inspection when requested. Fees for extra inspections shall be as specified in 107.11.3/ 107.11.4.

208.0 - F -

Facility. A single tract or contiguous tracts of land and any improvements on them, upon which one (1) or more service connections are located, and which, except for easements and public right-of-way, are wholly owned, leased or otherwise subject to the control of the customer.

Fixture Group. A set of fixtures within a room or rooms serving an individual or group of individuals at a unique single time.

Floor Area, Net. The actual occupied area not including unoccupied accessory areas such as corridors, stairways, toilet rooms, mechanical rooms and closets.

210.0 - H -

Health Department. The St. Louis City Department of Health.

211.0 - I -

Irrigation Backflow Assembly. An assembly consisting of a Reduced Pressure Zone Backflow Device and a properly sized Shock Arrestor located downstream and within 12 inches of the backflow device.

Isolation - (Cross-Connection). Protection of the user water system by installation of an approved backflow prevention device or assembly at the point of connection between the user's water system and any device, equipment, appliance, appurtenance assembly or area which might constitute a real or potential cross-connection.

215.0 - M -

Main & Branch System. The conventional method of water distribution system. This system utilizes a main to service several branches, which in turn service individual fixtures.

Manifold System.

1) The "home run" system utilizes a centrally located manifold to individually distribute supply lines to each fixture.

2) The "remote manifold" system utilizes a trunk or main, which services several small manifolds that in turn service individual fixtures.

Master License Disabled. Master licensee who is unable to obtain permits and receive inspections because an approved bond or the required insurance certificate, current phone and address on file is not correct, or the Master licensee is in arrears on any fees or charges owed St. Louis City.

Master License Enabled. Master licensee who is able to obtain permits, receive inspections and who has on file with approved bond and insurance certificate, current phone and address is on file with St. Louis City. The Master licensee shall not be in arrears on any fees and charges owed St. Louis City.

Master License Inactive. A Master licensee who has chosen to put his Master license inactive.

Mechanical Code. The Mechanical Code adopted by the City of St. Louis.

Minor Repairs. The term "minor repairs" shall be construed to mean repairs within the interior of any building to leaks in drains, pipes, traps and valves, opening waste or supply pipes, and traps or drains. It shall not be construed to include any work involving connections to or replacement or rearrangement of soil pipes, supply pipes, waste pipes, vent pipes or inside rain leader pipes, or the replacing or setting of any fixture, or replacement or repairs to Backflow Prevention Devices, pressure reducing or regulating valves, or any other installation, repair or alteration which in the judgment of the Chief Plumbing Inspector is of such a nature which if improperly installed, repaired or altered would endanger the public health. Exemption from the permit requirements of this Code shall not be deemed to grant authorization for any work to be done in violation of the provisions of this Code or any other laws or ordinances of this jurisdiction.

MSD. The Metropolitan St. Louis Sewer District.

Multiple Single-Family Dwelling. Wherever the term multiple single-family dwelling is used in this Code, it shall be construed to include two-family dwellings.

Multipurpose Residential Fire Protection Piping Systems. A piping system intended to serve all plumbing fixtures and fire protection needs.

216.0 - N -

Net Floor Area. The actual occupied area not including unoccupied accessory areas such as corridors, stairways, toilet rooms, mechanical rooms, and closets.

217.0 - O -

Office. The Office of the Section of Plumbing Regulations and Inspections.

Other Establishment. Any public or private structure other than a dwelling, which generates sewage.

218.0 - P -

Parallel Water Distribution System. A Parallel Water Distribution System usually refers to plastic pipe systems, usually PEX or PEX-AL-PEX systems that use a manifold in the system.

Plumbing System. Includes all potable water, building supply and distribution pipes, all plumbing fixtures and traps, all drainage and vent pipe(s), and all building drains and building sewers, including their respective joints and connection, devices, receptors, and appurtenances within the property lines of the premises, and shall include storm water drainage from all private and St. Louis City constructed bridges and structures in-

cluding bridge drains, and drainage piping to a connection with the storm or combined sewer, and shall include potable water piping, potable water treating or using equipment, water heaters, water heating boilers for potable water and vents for same, residential dishwasher replacement, multipurpose fire sprinkler systems.

Exclusion #1: The receiving, unloading, moving, storing, hoisting, setting, aligning and leveling of casework housing plumbing components, such as laboratory fume hoods and hospital headwall units, shall not be considered to be components of plumbing systems and shall not be subject to the licensing provisions of this Code.

Exclusion: Residential Fire Protection Systems, separate and independent from the water distribution system and protected by a backflow prevention assembly shall be considered to be a Stand-Alone Fire Sprinkler System. The Residential Fire Protection System is considered to be all piping, components, sprinklers, valves, etc. beyond the discharge side of the Potable Water Service and Potable Water Distribution System Valve as installed and permitted under the Mechanical Code.

Public Water System. A system for the provision to the public of piped water for human consumption, if such system has at least fifteen (15) service connections or regularly serves an average of at least twenty-five (25) individuals daily at least sixty (60) days per calendar year. Such system includes any collection, treatment, and storage or distribution facilities used in connection with such system.

219.0 - Q -

Quick Closing Valve. A fast-action solenoid valve, spring loaded self-closing faucet, push-pull type valves and faucets, or any other device capable of instantaneously closing.

220.0 - R -

Rainwater Harvesting. A technology used to collect, convey, and store rain from relatively clean surfaces such as a roof, land surface or rock catchment for later use.

Re-inspection. See Extra Inspection.

Required Inspection. An inspection which falls within the minimum number of inspections required by this Code.

Roof Drain. A drain installed to receive water collecting on the surface of a roof and to discharge it into a leader, down spout, or conductor. Roof drain includes sump receivers, clamps, grates, sumps, extensions, hangers, supports and all other appurtenances necessary for its function, security and stability.

Roughing-In. The installation of all parts of the plumbing system, which can be completed prior to the installation of fixtures. This includes drainage, water supply, gas piping, and vent piping and the necessary fixture supports.

1. Ground Rough In. All underground piping, which shall include waste, vent, and distribution piping.

2. Stack Rough In. All waste, vent and distribution water supply lines above ground.

221.0 - S -

Sanitary Sewer. A sewer, which carries sewage and excludes storm, surface, and ground water.

Service Connection. Any water line or pipe connected to a water distribution main or pipe for the purpose of conveying water to a point of use.

Sewer District. The Metropolitan St. Louis Sewer District (MSD) or private sewer company having jurisdiction in the location where work is to be performed.

Standpipe. A vertical pipe generally used for the storage and distribution of water for fire extinguishing.

Strapped Plumbing. A plumbing scheme where drain piping from upper floors is supported just below floor joists of lowest floor providing gravity flow to public or private sewer and exits the building through a wall penetration.

Street Department. The City of St. Louis Street Department.

225.0 - W -

Water Customer. Any person who receives water from a public water system.

Water Distribution System. All piping, conduits, valves, hydrant, storage facilities, pumps and other appurtenances, excluding service connections, which serve to deliver water from a water treatment plant or water supply source to the public.

Water Service Pipe/Building Supply. The pipe from the water main or other source of potable water supply, including the corporation, and meter (if installed), to the water distributing system of the building served.

Water System. All sources from which water is derived for drinking or domestic use by the public, also all structures, conduits and appurtenances by means of which water for use is treated, stored or delivered to

consumers, except service connections from water distribution systems to buildings and plumbing within or in connection with buildings served.

Water Supply Source. All sources of water supply including wells, infiltration galleries springs, reservoirs, lakes, streams or rivers from which water is derived for public water systems, including the structures, conduits, pumps and appurtenances used to withdraw water from the source or to store or transport water to the water treatment facility or water distribution system.

Welded Joint or Seam. Any joint or seam obtained by the joining of metal or plastic parts in the plastic molten state.

Welder, Pipe. A person who specializes in the welding of pipes and holds a valid certificate of competency from a recognized testing laboratory, based on the requirements of the ASME Boiler and Pressure vessels code, Section IX for metal pipe and/or based on the requirements of the AWS B2.4 Specification and /or Plastics-Pipe-Institute (PPI), Generic Butt Fusion Joining Procedure for Field Joining of Polyethylene Pipe for Welding Procedure and Performance Qualification for Thermoplastics.

CHAPTER 3
GENERAL REGULATIONS

Amendments to The Uniform Plumbing Code™ - Chapter 3 - General Regulations. — Chapter 3 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

301.2.5 Existing Buildings. In existing buildings or premises in which plumbing installations are to be altered, repaired, or renovated, the Authority Having Jurisdiction has discretionary powers to permit deviation from the provisions of this Code, provided that such proposal to deviate is first submitted for proper determination in order that health and safety requirements, as they pertain to plumbing, shall be observed.

1. Reuse of Water Service.

(A) Existing water service may be used in connection with new buildings or new plumbing and drainage work only when they are found on examination and test to conform in all respects to the requirements governing new work and the proper Authority Having Jurisdiction shall notify the owner to make any changes necessary to conform to this Code. No building or part thereof shall be erected or placed over any part of a water service, which is constructed of materials other than those approved elsewhere in this Code for use under or within a building.

(B) For alterations and additions to a building with an existing 3/4" size water service:

(1) For the installation of an additional 9 WSFU's which then results in an existing residential or commercial building to total no more than 2½ baths and a maximum total of 31 WSFU's the 3/4" size water service shall be allowed to remain with no change.

(2) For the installation adding more than 9 WSFU's or totaling more than 31 WSFU's, the 3/4" size water service shall be replaced and sized in accordance with the provisions of Chapter 6 of this Code.

301.5.3 Design Documents. The registered professional engineer shall provide four (4) complete sets of signed and sealed documents for the alternative engineered design for submittal to the Authority Having Jurisdiction. The design documents shall include at a minimum, a floor plan and a riser diagram of the work. Where appropriate, the design documents shall indicate the direction of flow, all pipe sizes, grade of horizontal piping, loading and location of fixtures and appliances.

310.5 Obstruction of Flow. No fitting, fixture and piping connection, appliance, device, or method of installation that obstructs or retards the flow of water, wastes, sewage, or air in the drainage or venting systems, in an amount greater than the normal frictional resistance to flow, shall be used unless it is indicated as acceptable in this Code or is approved per Section 301.2 of this Code. The use of an automatic air vent type fitting is prohibited. The enlargement of a three (3) inch (80 mm) closet bend or a stub to four (4) inches (100 mm) shall not be considered an obstruction.

311.0 Independent Systems.

311.1 General. The drainage system of each new building and of new work installed in an existing building shall be separate and independent from that of any other building, and, where available, every building shall have an independent connection with a public or private sewer.

Exception: Where one building stands in the rear of another building on an interior lot, and no private sewer is available or can be constructed to the rear building through an adjoining court, yard, or driveway, the building drain from the front building shall be permitted to be extended to the rear building. The

General requirements for building drains and building sewers serving single service Fats, Oil, or Grease (FOG) generating facilities. (See drawing # 20 in appendix O)

1. Commercial Units.

(A) Separation of sanitary, and FOG building drains exiting the building.

(1) All sanitary, and FOG building drains shall exit the building separately and shall be combined in a sampling manhole prior to leaving the property. Storm Drains shall exit the property separately where conditions allow.

Exception: Where the footprint of the building on the property does not provide adequate clearance for this installation it shall be installed inside the building. Access from the outside shall be provided for this installation.

2. One, Two & Four Family Residential (A) Separate FOG building drain not required.

311.2 General. General requirements for building drains and building sewers serving multi-tenant one- and two-story buildings (also called strip stores). (See drawing # 20 in appendix M).

1. There shall not be installed within the building structure a common drain to all tenant units. Each tenant will have installed an independent connection with a private sewer through a sampling tee. The private sewer will be located a minimum of five feet (5') from the building and a minimum of five feet (5') from the property line.

2. If the tenant is a FOG generating facilities there shall be a separate FOG building drain.

(A) All grease generating appliances and all fixtures collecting FOG laden waste shall pass through a hydromechanical grease interceptor (HGI) before connection to the separate FOG building drain.

Exception: Strip stores and/or commercial plumbing installations as shown in Drawing 21 46, containing a maximum of 75 gpm (maximum 4-inch diameter outlet) discharge from the hydromechanical interceptor may be routed to the common sanitary drain within three (3) feet of the exterior foundation wall and prior to exiting the building.

3. Waste drain lines from garbage disposals, dishwashers and pre-rinse sinks, before entering a grease interceptor, shall first flow through a solids interceptor.

312.3 Building Sewer and Drainage Piping. No building drain or other drainage piping or part thereof, constructed of materials other than those approved for use under or within a building, shall be installed, or less than one (1) foot (305 mm) below the surface of the ground. No building sewer or drainage piping or part thereof, shall be installed under or within five (5) feet (1524 mm) of any building or structure nor less than thirty (30) inches (760 mm) below the surface of the ground.

Exception: Transition from all drainage thirty (30) inches (760 mm) below the surface of the ground to the building sewer at a maximum of forty-five (45°) degrees.

312.13 Exposed ABS Piping. ABS piping shall not be exposed to direct sunlight.

Exception:

(1) ABS piping exposed to sunlight that is protected by water based synthetic latex paints.

(2) ABS piping exposed as vent termination pipe through roof.

312.14 Exposed PVC Piping. PVC piping shall not be exposed to direct sunlight.

Exceptions:

(1) PVC piping exposed to sunlight that is protected by water based synthetic latex paints.

(2) PVC piping wrapped with not less than 0.04 inch (1.02 mm) thick tape or otherwise protected from UV degradation.

(3) PVC piping exposed as vent termination pipe through roof.

314.2 Tunneling and Driving. Driving may be done in yards, courts, or driveways of any building site. When pipes are driven, the drive pipe shall be at least one (1) size larger than the pipe to be laid. Tunneling is not allowed.

314.4.2 Welding Thermoplastic Pipe and Fittings. Plastic pipe and fittings designed to be joined by thermoplastic welding processes used for owner and/or operator installed gas transmission mains and for other applications such as Gas Service Lines and Gas Mains, Domestic Water Mains and Potable Water Service Lines shall comply with AWS B2.4 Specification and/or Plastic-Pipe-Institute (PPI), Generic Butt Fusion Joining Procedure for Field Joining of Polyethylene Pipe, for Welding Procedure and Performance Qualification for Thermoplastics.

Welding shall be performed by certified or qualified installers meeting the requirements of AWS B2.4, Individual Manufacturer Qualifications under the regulations of PPI, qualifications given by material distributor or manufacturer, or certification or qualification issued by owner. Qualification by Manufacturers will

last for the duration of one (1) year from time qualified unless installer has used the proceeded within the time allotted (determined by individual manufacturer.) The one (1) year qualification for a refresher course will commence from the date of the refresher course.

321.0 Parking Garages.

321.1 Parking Structures Drainage. Drainage systems for parking structures shall be designed and installed in the following manner:

1. Drainage systems for roofs and all uncovered areas shall discharge into the storm sewer in a manner prescribed by this Code (See "6").

2. Drainage systems for intermediate floor areas and all other covered areas shall discharge into the sanitary sewer in a manner prescribed by this Code (See "5" & "6").

3. Floor drains for parking structures, in parking areas, need not be trapped.

4. Sanitary drains shall discharge through sand and oil interceptors. The oil interceptor shall be located on the outside of the building.

5. All storm and sanitary piping that connect to sanitary or combination sewers shall be trapped prior to connection to the sewer.

6. Drainage and vent systems installed in parking structures shall not be interconnected with internal sanitary systems.

7. All drainage lines, sanitary and storm, shall be routed through inspection manhole prior to connection to sewer main or other approved discharge.

322.0 Hospitals and Ambulatory Care Facilities and Nursing Homes. All plumbing facilities shall comply with the Missouri Licensing Law Regulations and Codes for Hospitals and Ambulatory Care Facilities and Nursing homes.

322.1 Water Heating Equipment.

1. The water heating equipment shall have sufficient capacity to supply six and one half (6-1/2) gallons of water at one hundred ten (110) degrees Fahrenheit per hour per bed for fixtures; four (4) gallons of water at one hundred and twenty (120) degrees Fahrenheit per hour per bed for kitchens, and four and one half (4-1/2) gallons of water at one hundred and sixty (160) degrees Fahrenheit per hour per bed for laundry. The rinse water temperature of automatic ware washing equipment shall be one hundred and eighty (180) degrees Fahrenheit.

2. Such water heating equipment may be of the instantaneous, semi-instantaneous, flash or storage type. Where direct fired water heaters are used, they shall be of an approved high-pressure type. Submerged steam heating coil shall be of copper. All water heating equipment shall be fabricated of non-corrosive metal or lined with non-corrosive material.

CHAPTER 4
PLUMBING FIXTURES

Amendments to the Uniform Plumbing Code™ - Chapter 4 - Plumbing Fixtures. Chapter 4 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

406.1 Water and Waste Connections. Baptisteries, ornamental and lily ponds, aquaria, ornamental fountain basins, and similar fixtures and specialties requiring water and/or waste connections shall have adequate backflow and back-siphonage protection and shall be submitted for approval to the Authority Having Jurisdiction prior to installation.

406.2 Special Use Sinks. Restaurant kitchen and other special use sinks may be made of approved type bonderized and galvanized sheet metal of not less than No. 16 U.S. Grade (0.0625) (1.6 mm) and stainless steel of approved quality and grade. All sheet metal plumbing fixtures shall be adequately designed, constructed, and braced in an approved manner to satisfactorily accomplish their intended purpose.

412.1.1 Nonwater Urinals. When Approved with Authority Having Jurisdiction. Nonwater urinals shall have a liquid barrier sealant to maintain a trap seal. Nonwater urinals shall permit the uninhibited flow of waste through the urinal to the sanitary drainage system. Nonwater urinals shall be cleaned and maintained in accordance with the manufacturer's instructions after installation. Where nonwater urinals are installed, not less than one water supplied fixture rated at not less than 1 water supply fixture unit (WSFU) shall be installed upstream on the same drain line to facilitate drain line flow and rinsing. Where nonwatery urinals are installed, they shall have a water distribution line rough-in to each individual urinal location to allow for the installation of an approved backflow prevention device in the event of a retrofit.

412.1.2 Nonwater Urinals with Drain Cleansing Action. When Approved with Authority Having Jurisdic-

tion Nonwater urinals with drain cleansing action shall comply with ASME A112.19.19 and shall be cleaned, maintained, and installed in accordance with the manufacturer's installation instructions.

418.3 Location of Floor Drains. Floor drains shall be installed in the following areas:

(1) All toilet rooms designated as handicapped, and toilet rooms containing two or more water closets or a combination of one water closet and one urinal, except in a dwelling unit.

(2) Commercial kitchens and in accordance with 8 Section 704.3.

(3) Laundry rooms in commercial and institutional buildings and common laundry facilities in multifamily dwelling buildings.

(4) Boiler rooms.

(5) Commercial and Institutional Kitchens.

(6) Toilet rooms designated for Public Use.

(7) Within fifteen (15') feet and in the same room as a hot water heater or water heater boiler.

(8) Within fifteen (15') feet and in the same room as backflow devices which have received approval from the Mo DNR, which have in their design the capability of a discharge.

(9) All wheel chair accessible roll-in showers shall be supplied, in addition to the shower drain, with a threshold drain outside the shower within 5 feet of the shower drain, whenever a threshold or obstacle to natural drainage to the shower drain exists. Where the drain is required, the waste line of the threshold drain shall be connected to the shower drain waste pipe above the trap.

(10) When required by owner or designer, a floor drain shall be installed within five feet of the mop basin drain, and the waste line of that drain shall be connected to the mop basin drain waste pipe above the trap.

(11) All basements with or without fixtures shall require a floor drain.

418.3.15 Floor Drains and Floor Sinks Installed. Floor drains and floor sinks shall be installed in accordance with the provisions set forth in this Code and in the manner set forth hereunder:

A. A connection for a floor drain at the automatic clothes washer above ground may be discharged directly into the riser-pipe (standpipe) above the trap of the automatic clothes washer drain and the floor drain need not be trapped.

B. Underground traps three inches (3") in diameter and larger for floor drains, hub drains or standpipe receptors need not be vented if sufficient stack vents or vent stack are connected to the underground system to ensure adequate ventilation and protection of the trap seals.

C. Traps two inches (2") in diameter installed for floor drains, hub drains and standpipe receptors shall be individually vented.

D. The connection of a floor drain, three (3") or four (4") inches in size when installed underground shall be connected into the horizontal building drain not less than five (5') feet downstream from the soil or waste stack.

E. Floor sinks being used as indirect waste receptors for plumbing fixtures or appliances shall be individually wasted and vented in accordance with the provisions established in this Code.

F. Floor sinks, three (3") inch trap size and larger, being used as indirect waste receptors for drip drainage and other similar discharges may be either individually vented or line vented in accordance with the provisions established in this Code.

423.0 Food Service Establishments. Food service establishments with an occupant load of one hundred (100) or more shall be provided with separate facilities for employees and customers. Customer and employee facilities may be combined for occupant loads less than one hundred (100). Customer occupant load shall be determined as one occupant per each 15 square foot or part thereof, of dining and waiting area. Where outdoor seating is provided for a restaurant, the actual outdoor seating area shall be included in the total occupant load area for the restaurant. When separate facilities are required for employees and customers and the total number of employees exceeds 40 at any time, a second toilet room shall be provided for employees and such toilet rooms shall be uni-sex. Employee toilet rooms do not require physically disabled accessibility if other facilities in this establishment are available which meet physically disabled accessibility requirements.

MINIMUM PLUMBING FACILITIES

Each building shall be provided with sanitary facilities, including provisions for persons with disabilities as prescribed by the Department having jurisdiction. Table 422.1 applies to new buildings, additions to a building, and changes of occupancy or type in an existing building resulting in increased occupant load.

Exception: New cafeterias used only by employees. For requirements for the physically disabled, ICC/ANSI A117.1, Accessible and Usable Buildings and Facilities, may be used. Access to public toilet facilities shall not be areas used by employees preparing food or areas used for the repair or assembly of products obtained or consumed by customers, or storage rooms, or mechanical equipment rooms.

Exceptions:

1. Where outdoor seating is provided for a restaurant, the actual outdoor seating area shall be included in the total occupant load for the restaurant.

2. Re-occupancy with no change of use may require a change in the number of fixtures due to increase in occupant load or re-configuration of the space.

Notes:

1. The figures shown are based upon one (1) fixture being the minimum required for the number of persons indicated or any fraction thereof.

2. Building categories not shown on this table shall be considered separately by the Authority Having Jurisdiction.

3. Drinking fountains shall not be installed in toilet rooms.

4. Laundry trays. One (1) laundry tray or one (1) automatic washer standpipe for each dwelling unit or one (1) laundry tray or one (1) automatic washer standpipe, or combination thereof, for each twelve (12) apartments. Kitchen sinks, one (1) for each dwelling or apartment unit.

5. For each urinal added in excess of the minimum required, one (1) water closet may be deducted. The number of water closets shall not be reduced to less than two-thirds (2/3) of the minimum requirement.

6. As required by PSAI Z4.1, Sanitation in Places of Employment.

7. Where there is exposure to skin contamination with poisonous, infectious, or irritating materials, provide one (1) lavatory for each five (5) persons.

8. Twenty-four (24) lineal inches (610 mm) of wash sink or eighteen (18") inches (457 mm) of a circular basin, when provided with water outlets for such space, shall be considered equivalent to one (1) lavatory.

9. Laundry trays, one (1) for each fifty (50) persons. Service sinks, one (1) for each hundred (100) persons.

10. General. In applying this schedule of facilities, consideration shall be given to the accessibility of fixtures. Conformity purely on a numerical basis may not result in an installation suited to the need of the individual establishment. For example, schools shall be provided with toilet facilities on each floor having classrooms, for students and for teachers.

(A) Surrounding materials, wall and floor space to a point two (2) feet (610 mm) in front of urinal lip and four (4') feet (1,219 mm) above the floor, and at least two (2) feet (610 mm) to each side of the urinal shall be lined with non-absorbent materials.

(B) Trough urinals are prohibited.

(C) Waterless urinals are prohibited.

11. A restaurant is defined as a business which sells food to be consumed on the premises.

(A) The number of occupants for a drive-in restaurant shall be considered as equal to the number of parking stalls.

(B) Employee toilet facilities are not to be included in the above restaurant requirements. Hand washing facilities shall be available in the kitchen for employees.

(C) For a drive-thru or take-out restaurant with seating, not to exceed twenty (20) customers, toilet facilities shall be provided available to customers and employees. A minimum of one (1) toilet room consisting of one (1) water closet, one (1) lavatory, and one (1) floor drain shall be available to customers.

(D) For a drive-thru restaurant or take-out with no seating, toilet facilities are required for employees only.

(E) For a facility dispensing fuel to the public which offers food and drink in a structure larger than seven hundred fifty (750) square feet, toilet facilities for male and female shall be provided available to customers and to employees.

(1) Where there are more than twelve (12) but less than twenty-three (23) fuel dispensing stations available, there shall be provided for the male toilet room two (2) water closets, one (1) urinal, one (1) lavatory, and one (1) floor drain and there shall be provided for the female toilet room three (3) water closets, one (1) lavatory, and one (1) floor drain.

(2) For each additional ten (10) fuel dispensing stations there shall be provided for the male toilet room an additional one (1) water closet or urinal, and one (1) lavatory, and there shall be provided for the female toilet room an additional one (1) water closet, and one (1) lavatory.

12. Where food is consumed indoors, water stations may be substituted for drinking fountains. Offices

or public buildings for use by more than six (6) persons shall have one (1) drinking fountain for the first one hundred fifty (150) persons and one (1) additional fountain for each three hundred (300) persons thereafter. At least one (1) drinking fountain of those required shall be located within twenty-five (25) feet of the entrance to the primary toilet room on any floor.

13. There shall be a minimum of one (1) drinking fountain per occupied floor in schools, theaters, auditoriums, dormitories, offices or public building.

14. The total number of water closets for females shall be at least equal to the total number of water closets and urinals provided for men. This requirement does not apply to retail or wholesale stores. For any facility which undergoes major renovation as a place of assembly for public amusement including, but not limited to, sports stadiums, arenas, auditoriums and assembly halls, there should be provided, at a minimum, the number of water closets for women as there are provided the total number of water closers and urinals for men. The term "major renovation" means any reconstruction, rehabilitation, addition or other improvement which increases the occupant load of the building by more than 20%.

15. For smaller-type Public and Professional Offices such as banks, dental offices, law offices, real estate offices, architectural offices engineering offices and similar uses. A public area in these offices shall use the requirements for Retail or Wholesale Stores.

16. Recreation or community room in multiple dwellings or apartment buildings, regardless of their occupant load, shall be permitted to have single-accommodation facilities in common use areas within tracts or multi-family residential occupancies where the use of these areas is limited exclusively to owners, residents and their guests. Examples are community recreation or multi-purpose areas in apartments, condos, townhouses or tracts.

17. A drinking fountain shall not be required in occupancies of 30 or less. When a drinking fountain is not required, then footnotes 3, 12 and 13 are not required.

18. Provide one service sink per floor. Provide one (1) service sink per structure or per wing.

19. Provide one (1) service sink per floor in facilities over Five Thousand Five Hundred (5500) square feet.

20. Provide a minimum of one (1) exterior hose bibb on all buildings.

CHAPTER 5
WATER HEATERS

Amendments to The Uniform Plumbing Code™ - Chapter 5 - Water Heaters. Chapter 5 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

501.2 Any system with a new or a replacement water heating apparatus requiring a pressure reducing valve or a closed system shall be provided with an approved, listed and adequately sized thermal expansion device (expansion tank), installed within ten (10) feet of, and on the cold water supply to the water heater, between the water heater shut-off valve and the water heater, at least 18 inches away from the cold-water inlet fitting on the water heater. The tank may be installed in a vertical up, vertical down, or horizontal position in accordance with the 20 manufacturer's recommendation. If the expansion tank is installed horizontally, it must be adequately supported. No support shall be provided from the water heater.

This expansion tank meets the requirements in 608.2 regarding protection from thermal expansion and maintenance of pressure setting of the regulator.

The measured static building pressure, and the pressure at which the expansion tank has been set shall be written in ink on a permanent durable type label (equal to an Avery #AVE6578 2" × 2- 3⅝" Label) attached to the expansion tank in a visible location. Shut-off valves for water heaters shall be installed in view of, within 10 feet of, within easy reach from the ground, and shall be readily accessible No shutoff shall be installed on the branch to the expansion tank.

The expansion tank shall be installed in such a manner that the removal or replacement of the water heater is not impaired.

Exceptions:

1. Engineered systems that provide equivalent protection may be approved by the Authority Having Jurisdiction or his/her representative.

2. Listed non-storage instantaneous heaters having an inside diameter of not more than three (3") inches (76 mm).

3. Water heaters, 30 gallon or less, installed under counter or in confined spaces in multi-family units, where space does not permit the installation of an

expansion tank, adequately sized mechanical water hammer arrestors may be used to provide for thermal expansion with the approval of the Authority Having Jurisdiction or his/her representative.

507.5 Drainage Pan. When a water heater is located in an attic, attic-ceiling assemble, floor ceiling assemble, or floor-subfloor assembly, or furred space, or above the ground or basement level and does not have a floor drain available, where damage may result from a leaking water heater, a watertight safe pan of corrosion-resistant materials shall be installed beneath the water heater and shall be laid on or be supported by a structurally sound base to ensure proper drainage.

The drain from the pan shall discharge to a non-concealed point of disposal to alert occupants in the event of a leak.

The pan shall have a minimum depth of 2 inches (51 mm) and shall be of such shape and capacity as to prevent splashing or flooding and shall be made watertight. The pan shall not be less than 3 inches (76 mm) larger than the unit in width and length. Metallic pans shall have a minimum thickness of not less than 0.0276-inch (0.7 mm) galvanized sheet metal. Non-metallic pans shall have a minimum thickness of not less than 0.0625 inch (1.6 mm). Non-metallic safe pans shall be permitted to be used only with electric water heaters. Pan shall have a 1 inch (25.4 mm) minimum tapping and increase to a 1-1/4-inch (31.8 mm) diameter drain made of galvanized steel, copper, brass, solid core PVC or CPVC which terminates and discharges through an air gap or air break into a properly trapped and vented, receptor, hub drain, floor drain or floor drain with a funnel grate, or to an approved location. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than one-eighth unit vertical in 12 units horizontal (1-percent slope). Every passageway to an attic water heater shall have an unobstructed solid continuous flooring not less than twenty-four (24") inches (610 mm) wide from the trap door or opening to the water heater. If the trap door or opening is more than eleven (11') feet (3352 mm) above the floor, a stairway or ladder permanently fastened to the building shall be provided. Such stairway or ladder shall lead directly to the edge of the trap door or opening and shall comply with the provisions of this section.

Exception: A portable ladder may be used for access for water heaters in attics on the single story portion of a Group U, Division 1 or R occupancy.

508.5 Relief Valve Discharge. Discharge from a relief valve into a water heater pan is permitted.

CHAPTER 6
WATER SUPPLY AND DISTRIBUTION

Amendments to The Uniform Plumbing Code™ - Chapter 6 - Water Supply And Distribution — Chapter 6 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

601.1.2 Temperature Maintenance. Where Required - Heated water distribution systems in buildings, where developed length of heated water piping from the source of the heated water to the farthest fixture exceeds hundred (100') feet, shall maintain heated water temperature in all supply piping to within twenty-five (25') feet of any heated water outlet.

603.2 Approval of Devices or Assemblies. Before a device or an assembly is installed for the prevention of backflow, it shall have first been approved by Missouri Department of Natural Resources. Devices or assemblies shall be tested in accordance with recognized standards or other standards acceptable to the Authority Having Jurisdiction. Backflow prevention devices and assemblies shall comply with Table 603.2, except for specific applications and provisions as stated in Section 603.5.1 through Section 603.5.20.

Devices or assemblies installed in a potable water supply system for protection against backflow shall be maintained in good working condition by the person or persons having control of such devices or assemblies. Such devices or assemblies shall be tested at the time of installation, repair, or relocation and not less than on an annual schedule thereafter, or more often where required by the Authority Having Jurisdiction. Where found to be defective or inoperative, the device or assembly shall be repaired or replaced.

No device or assembly shall be removed from use or relocated, or other device or assembly substituted, without obtaining an approved permit.

Testing or maintenance shall be performed by a certified backflow assembly tester or repairer in accordance with ASSE Series 5000 or otherwise approved by the Authority Having Jurisdiction.

603.4 General Requirements. All assemblies shall conform to listed standards and be acceptable to the

Authority Having Jurisdiction over the selection and installation of backflow prevention assemblies. In addition to the standards for approval established elsewhere in this Code all Reduced Pressure Principal Backflow Prevention Assemblies and Double Check Valve Backflow Prevention Assemblies of any nature shall have the approval of the American Society of Sanitary Engineering, University of Southern California Foundation for Cross Connection Control and Hydraulic Research, and the Missouri Department of Natural Resources.

603.4.6 Integral Backflow Preventers. Fixtures, appliances or appurtenances with integral backflow preventers or integral airgaps manufactured as a unit shall be installed in accordance with their listing requirements, the manufacturers' instructions and as acceptable by the Authority Having Jurisdiction.

603.4.8 Drain Lines. Drain lines serving backflow devices or assemblies shall be sized in accordance with the discharge rates of the manufacturer's flow charts of such devices or assemblies. and a floor drain be installed within fifteen (15') feet and in the same rooms backflow devices or assemblies which have received approval from the Mo DNR, which have in their design the capability of a discharge.

603.5.6 Protection from Lawn Sprinklers and Irrigation Systems. Potable water supplies to systems having no pumps or connections for pumping equipment, and no chemical injection or provisions for chemical injection, shall be protected from backflow by the following device:

(1) Reduced-pressure principle backflow prevention assembly (RP)

603.5.6.2 Systems with Backflow Devices. Where systems have a backflow device installed downstream from a potable water supply pump or a potable water supply pump connection, the device shall be:

(1) Reduced-pressure principle backflow prevention assembly (RP)

603.5.8 Water-Cooled Equipment. Water-cooled compressors, degreasers, or other water-cooled equipment shall be protected by a listed Reduced Pressure Zone backflow preventer installed in accordance with the requirements of this chapter.

603.5.9 Aspirators. Water inlets to water-supplied aspirators shall be equipped with a vacuum breaker or equipped with a listed Reduced Pressure Zone Backflow Preventer installed in accordance with its listing requirements and this chapter. The discharge shall drain through an air gap. Where the tailpiece of a fixture to receive the discharge of an aspirator is used, the air gap shall be located above the flood-level rim of the fixture.

603.5.10 Steam or Hot Water Boilers. Potable water connections to steam or hot water boilers shall be protected from backflow by a reduced pressure principle backflow prevention assembly in accordance with Table 603.2. Where chemicals are introduced into the system a reduced pressure principle backflow prevention assembly shall be provided in accordance with Table 603.2.

603.5.16 Special Equipment. Portable cleaning equipment, dental vacuum pumps and chemical dispensers shall be protected from backflow by an air gap, or a reduced pressure principle backflow preventer.

603.5.18 Pure Water Process Systems. The water supply to a pure water process system, such as dialysis water systems, semiconductor washing systems, and similar process piping systems, shall be protected from backpressure and back siphonage by a reduced-pressure principle backflow preventer.

Exception: Portable dialysis equipment meant for use in a private residence. The equipment shall be protected by using a 316 stainless steel, corrosion resistant, double check with an atmospheric port, ASSE 1022, NSF Standard 18, (vented backflow preventer), or air gap as a means of backflow prevention in lieu of a Reduced Pressure Zone Backflow Preventer.

603.5.22 Installation of Backflow Preventers.

1. No person except those qualified, licensed and/or registered and bonded under this Code shall install a Backflow Prevention Device.

2. A permit is required for the installation of all Reduced Pressure Principle Backflow Prevention Devices and Double Check Valve Assembly Backflow Prevention Devices. Permits shall be issued and inspections performed by the plumbing section of the Department of Public Works. Permits shall be issued only to those contractors who are licensed and/or registered and bonded under this Code.

3. All backflow prevention devices shall be accessible. Backflow prevention devices shall not be installed in pits or similar potentially submerged locations or in fume, chemical or fuel hoods, or in any area containing fumes that are toxic, poisonous or corrosive.

4. Pressure type vacuum breakers shall be installed at a height of at least twelve (12) inches above the flood level rim of the fixture, tank, or similar device or assembly.

5. Double check valves and reduced pressure principle valves such devices or assemblies shall be installed at not less than twelve (12) inches above the grade, floor or platform with the maximum of sixty (60) inches above floor. They shall not be installed within access panels, over any machinery or equipment, or in any location, which might create a safety, hazard to those employed in testing and maintenance of these devices or assemblies.

6. Installation shall meet current Missouri Department of Natural Resources Regulations and St. Louis City Current Plumbing Code Ordinance. Where a conflict occurs between this Chapter and Missouri Department of Natural Resources the more stringent requirement shall apply.

603.5.23 Backflow devices shall be installed on the water supply from a community water system to a building, when the use of the building changes to a use that requires containment under this regulation, and/or when any potable or non-potable water is provided within the new or existing building.

604.2.2 Lead Water Services. All damaged lead water services, residential and/or commercial, shall be entirely replaced with copper or other acceptable material.

604.3 Copper or Copper Alloy Tube. Copper or copper alloy tube for water piping shall have a weight of not less than Type L.

Exception: Type M copper or copper alloy tubing shall be permitted to be used for water piping where piping is above ground in, or on a building.

Material	Underground		Water Distribution Pipe and Fittings (Inside Building)		Building Supply Pipe and Fittings Water Service - (Outside Building)
	Inside	Outside	Hot	Cold	Cold
Asbestos - Cement					
Brass	X	X	X	X	X
Copper	X	X	X	X	X
Cast Iron	X	X	X	X	X
CPVC (Schedule 40 and above)	X1	X1	X	X	
Galvanized Malleable Iron	X	X	X	X	X
Galvanized Wrought Iron	X	X	X	X	X
Galvanized Steel	X	X	X	X	X
HDPE	X	X		X	X
PE					
PE-AL-PE			X1	X1	
PEX	X1		X1	X1	X1
PEX-AL-PEX			X1	X1	
PVC ASTM 2241-Class 160-SDR 26		X			X
PVC ASTM 2241-Class 200 -SDR 21		X			X
PVC ASTM 1785-Schedule 40	X	X		X	X
PVC ASTM 1785-Schedule 80	X	X		X	X
PVC AWWA C900 (C905) DR14 Class 200 Pressure Pipe		X			X

Note: [1] Downstream from Pressure Reducing Valve2

604.10 Plastic Materials. Approved plastic materials shall be permitted to be used in water service piping, provided that where metal water service piping is used for electrical grounding purposes, replacement piping therefore shall be of like materials.

Exception 1: Where a grounding system acceptable to the Authority Having Jurisdiction is installed, inspected, and approved, metallic pipe shall be permitted to be replaced with nonmetallic pipe.

Exception 2: When plastic pipe is being installed in construction of water service pipe, the plastic pipe shall

terminate ten (10') feet outside the building foundation wall. The metallic pipe allowed by this section shall be installed from ten (10') feet outside the foundation to and within the building to the outlet of the house valve or the outlet of the PRV whichever is further from the entrance to the building. Protection from electrolysis (corrosion) shall be provided. Where metal water service piping is used for electrical grounding purposes, replacement piping therefor shall be of like materials.

604.10.2 Lead Water Service(s). All damaged lead water services, residential and/or commercial, shall be entirely replaced with copper or other acceptable approved materials.

604.13 Water Heater Connectors. Flexible metallic (copper and stainless steel) reinforced flexible braided stainless steel, or polymer braided with EPDM cores connectors that connect a water heater heating to the piping system shall comply with ASME A112.18.6/ CSA B125.6. Copper, copper alloy, or stainless steel flexible connectors shall not exceed 24 inches (610 mm). PEX, PEX-AL-PEX, PE-AL-PE, PE-RT tubing or CPVC tubing shall not be installed within the first 18 inches (457 mm) of piping connected to a water heater.

605.12.2 Solvent Cement Joints. Solvent cement joints for PVC pipe and fittings shall be clean from dirt and moisture. Pipe shall be cut square and pipe shall be deburred. Where surfaces to be joined are cleaned and free of dirt, moisture, oil, and other foreign material, primer shall be applied in accordance with ASTM F656. Primer shall be applied until the surface of the pipe and fitting is softened. Primer shall not be purple. Solvent cements in accordance with ASTM D2564 shall be applied to all joint surfaces. Joints shall be made while both the inside socket surface and outside surface of pipe are wet with solvent cement. Hold joint in place and undisturbed for 1 minute after assembly.

606.2 Fullway Valve. A fullway stop and waste valve controlling outlets shall be installed on the service entrance. Water piping supplying more than one building on one premises shall be equipped with a separate fullway stop and waste valve to each building, so arranged that the water supply can be turned on or off to an individual or separate building provided; however, that supply piping to a single-family residence and building accessory thereto shall be permitted to be controlled on one valve. Such shutoff valves shall be accessible. A fullway valve shall be installed on the discharge piping from water supply tanks at or near the tank. A fullway valve shall be installed on the cold-water supply pipe to each water heater at or near the water heater.

606.5 Control Valve. A control valve shall be installed immediately ahead of each water supplied fixture, appurtenance, or appliance and immediately ahead of each slip joint or appliance supply. A control valve shall be installed for sill cocks, wall hydrants, yard hydrants, street washers, and lawn irrigation systems in addition to required backflow assemblies. Parallel water distribution systems shall provide a control valve either immediately ahead of each fixture being supplied or installed at the manifold and shall be identified with the fixture being supplied. Where parallel water distribution system manifolds are located in attics, crawl spaces, or other locations not readily accessible, a separate shutoff valve shall be required immediately ahead of each individual fixture or appliance served.

a. In each dwelling unit, one or two bathrooms back to back or one over the other may be considered a group. However, in each dwelling unit with two or more bathroom groups not adjacent to each other, one or more control valves or individual fixture valves shall be provided so that each group may be isolated from the others.

b. In multi-dwelling units, one or more control valves shall be provided so that the water to any plumbing fixture or group of fixtures in any one dwelling unit may be shut-off without stopping flow of water to fixtures in other dwelling units.

608.2 Excessive Water Pressure. An approved type pressure regulator preceded by an adequate strainer shall be installed in all water service pipes near its entrance to the building and the static pressure reduced to eighty (80) pounds per square inch (552 kPa) or less. Such regulator (s) shall control the pressure to all water outlets in the building unless otherwise approved by the Authority Having Jurisdiction. Pressure at any fixture shall be limited to no more than eighty (80) psi under no-flow conditions. Sill cocks and outside hydrants may be left on full main pressure at the option of the owner. For potable water services up to and including one and one half (1-1/2) inch (40 mm) regulators, provision shall be made to prevent pressure on the building side of the regulator from exceeding main supply pressure. Approved regulators with integral bypasses are acceptable.

Exception: Where the water service pipe supplies water directly to a water pressure booster system, an elevated

water gravity tank, or to pumps provided in connection with a hydro pneumatic or elevated water supply tank system a pressure-reducing valve is not required. Each such regulator and strainer shall be accessibly located above ground or in a vault equipped with a properly sized and sloped bore-sighted drain to daylight, shall be protected from freezing, and shall have the strainer readily accessible for cleaning without removing the regulator or strainer body or disconnecting the supply piping. All pipe size determinations shall be based on eighty (80%) percent of the reduced pressure when using Table 610.4.

608.5 Discharge Piping. The discharge piping serving a temperature relief valve, pressure relief valve, or combination of both shall have no valves, obstructions, or means of isolation and be provided with the following:

(1) Equal to the size of the valve outlet and shall discharge full size to the flood level of the area receiving the discharge and pointing down.

(2) Materials shall be rated at not less than the operating temperature of the system and approved for such use or shall comply with ASME A112.4.1.

(3) Discharge pipe shall discharge independently by gravity through an air gap into the drainage system or outside of the building with the end of the pipe not exceeding 2 feet (610 mm) and not less than 6 inches (152 mm) above the ground and pointing downwards.

(4) Discharge in such a manner that does not cause personal injury or structural damage.

(5) No part of such discharge pipe shall be trapped or subject to freezing.

(6) The terminal end of the pipe shall not be threaded.

609.0 Installation, Testing, Unions, and Location

609.1 Installation. Water piping shall be adequately supported in accordance with Table 313.3. Burred ends shall be reamed to the full bore of the pipe or tube. Changes in direction shall be made by the appropriate use of fittings, except that changes in direction in copper or copper alloy tubing shall be permitted to be made with bends, provided that such bends are made with bending equipment that does not deform or create a loss in the cross-sectional area of the tubing. Changes in direction are allowed with flexible pipe and tubing without fittings in accordance with the manufacturer's instructions. Provisions shall be made for expansion in hot-water piping. Piping, equipment, appurtenances, and devices shall be installed in a workmanlike manner in accordance with the provisions and intent of the code. Building supply yard piping shall be not less than 42 inches below finish grade.

609.4 Testing. Upon completion of a section or of the entire hot and cold water supply system, the system shall be tested with water or air. The potable water test pressure shall be greater than or equal to the working pressure under which the system is to be used. The air pressure shall be a minimum of 50 psi (345 kPa). Plastic pipe shall not be tested with air. The piping system shall withstand the test pressure without showing evidence of leakage for a period of not less than 15 minutes.

609.11.1 Mechanical Devices. Where listed mechanical devices are used, the manufacturer's specifications as to location and method of installation shall be followed.

Exception: For one (1) family, and two (2) families attached residential units, in order to absorb water hammer a mechanical water hammer arrester shall be installed as follows:

1. Bathroom groups:

A) Single bathrooms, minimum size "A" or single bathrooms back to back on a branch, minimum size "B", an approved mechanical device on both the hot and cold-water branches serving the bathroom group.

B) For more than one (1) bathroom group served by a vertical riser an approved, minimum size "B", mechanical device on both the hot and cold water at the top of the riser.

C) For each appliance with quick-closing valves a properly sized approved mechanical device on both the hot and cold water shall be installed as close as possible to the quick-closing valves. Appliances that include quick-closing valves are washing machines, dishwashers and ice makers. Other appliances that are not listed here may be determined to have quick-closing valves and shall be properly protected.

2. Lawn Irrigation Systems

A) Where a lawn irrigation system is installed, an Irrigation Backflow Assembly consisting of a Reduced Pressure Zone Backflow Device and within twelve (12") inches a properly sized mechanical water hammer arrestor shall be installed on the supply line to the backflow device or assembly for the irrigation system.

(1) The size of the water hammer arrestor shall be a minimum of size "C". It shall be sized based on the following Table 609.10 - 1.

Table 609.10 - 1

Pipe Size	Arrestor Size
3/4"	"C"
1"	"D"
1 1/4" - 1 ½"	"F"
2"	"C" + "F"

Based on PDI Reference Standards

610.0 Size of Potable Water Piping.

610.1 The size of each water meter shall be as determined by the water purveyor. Each potable water supply pipe from the meter or other source of supply to the fixture supply branches, risers, fixtures, connections, outlets, or other uses shall be based on the total demand and shall be determined according to the methods and procedures outlined in this section. Other than systems sized by the use of Table 610.4, the system shall be designed to ensure that the maximum velocities allowed by the Code and the applicable standard are not exceeded.

610.7 Conditions for Using Table 610.4. On any proposed water piping installation sized using Table 610.4 the following conditions shall be determined:

1. Developed length of supply pipe from the Property line to most remote outlet.

2. Difference in elevation between the property line or other source of supply and the highest fixture or outlet.

610.8 Size of Meter and Building Pipe Using Table 610.4. The size of the building supply pipe and the building branch piping, in areas served by Missouri American Water Co. or its successor shall be determined as follows:

(Note: The water purveyor will determine the size of the meter installed.)

Table 610.4 - In the title line delete "and Meter Sizes".

The column in Table 610.4 titled "Meter and Street Service, Inches" is deleted.

1. Determine the available pressure at the source of supply.

2. Subtract one-half (1/2) pound per square inch pressure (3.4 kPa) for each foot (305 mm) of difference in elevation between such source of supply and highest water supply outlet in the building or on the premises;

3. Use the "pressure range" group within which this pressure will fall using Table 10.4;

4. Select the "length" column which is equal to or longer than the required length;

5. Follow down the column to a fixture unit value equal to or greater than the total number of fixtures units required by the installation;

6. Having located the proper fixture unit value for the required length, size of building supply pipe and the building branch piping as found in the left-hand columns titled "Building Supply and Branches, Inches" shall be applied.

No building supply pipe shall be less than one (1) inch (25.4 mm) in diameter. For light commercial strip centers, when the water service serves more than one tenant space, a one and one-half (1-½) inch minimum size water service shall be provided to the most remote tenant space.

610.8.1 Size of Meter and Building Pipe Using Table 610.4. The size of the meter and the building supply pipe and the building branch piping, in areas not served by City Water or its successor shall be determined as follows:

Column in Table 610.4 titled "Meter and Street Service, Inches" is not deleted and may be used to determine the size of the building supply pipe as determined by the water purveyor. Use the procedure in 610.8 with the following exceptions:

1. Having located the proper fixture unit value for the required length, size of meter and building supply pipe and the building branch piping as found in the two left hand columns shall be applied. No building supply pipe shall be less than one (1) inch (25.4 mm) in diameter. For light commercial strip centers, when the water service serves more than one tenant space, a one and one-half (1-½) inch minimum size water service shall be provided to the most remote tenant space.

610.9 Size of Branches. When Table 610.4 is used, the minimum size of each branch shall be determined by the number of fixture units to be served by that branch, the total developed length of the system, and the street service size, minimum one (1) inch (26.7 mm) in diameter as per Section 610.8. No branch piping is required to be larger in size than that required by Table 610.4 for the building supply pipe.

612.3.2.1 Installer Qualifications.

1. A multipurpose fire sprinkler system

(A) Licensed as a Plumber and certified by the Board of Plumbing Examiners. Technical and experience qualifications and examination criteria shall be determined by the Board of Plumbing Examiners

2. A stand-alone sprinkler system

(A) Licensed as a sprinkler fitter under the St. Louis City Mechanical Code.

CHAPTER 7
SANITARY DRAINAGE

Amendments to the Uniform Plumbing Code™ - Chapter 7 - Sanitary Drainage. — Chapter 7 of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

If any conflict of interpretations or requirements of parts or sections of this Chapter disagree with other similar Code provisions or other St. Louis City Ordinance requirements, the more stringent shall apply.

703.0 Size of Drainage Piping.

703.1.1 Exceptions.

1. Any portion of the building drain which is underground and which receives the discharge from a water closet shall be a minimum size of four inches (4") and the four-inch (4") pipe size shall terminate at the clean-out thirty-six inches (36") above the finish floor. The minimum size of any other portion of the drainage system, which receives the discharge from a water closet, shall be a minimum size of three inches (3").

(A) Approval may be given by the Authority Having Jurisdiction or his representative to approve the use of a minimum size of three (3") inches for the discharge of a single water closet when there is no four (4")inches or larger underground drain readily available. This approval 10 may be given, if such approval does not exceed the capacity of the drain, and, that it would be an undue hardship, or interrupt ongoing business activity, or require extensive demolition of a finished living area, or damage or destroy existing architectural or decorative furnishings.

2. Minimum size of the building sewer shall be six inches (6") in diameter and shall have the minimum of a two (2%) percent slope.

3. No soil or waste stack shall be smaller than the largest horizontal branch connected thereto. A 3 × 4 inch water closet bend shall not be considered a reduction in pipe size.

4. Any structure in which a building drain is installed shall have at least one stack vent or vent stack sized in accordance with section 904.1, not less than three inches (3") in diameter, or the size of the building drain. If the building drain is less than three inches (3") in diameter the vent shall be carried full size through the roof.

5. Any vent pipe extending through the roof shall be not less than two (2") inches in diameter and shall extend from its terminus at least eighteen (18") inches below the interior side of the roof deck.

6. No portion of the drainage system installed underground or below a basement or cellar shall be less than two (2") inches in diameter with the exception of vent piping which shall be a minimum of one and one-half (1-1/2") inches and condensate waste discharge lines which shall not be less than one and one-quarter (1 1/4") inches in diameter.

7. The maximum length of two (2") inch underground kitchen sink waste piping shall not exceed fifteen (15') feet from the point of connection to a horizontal branch drain or building drain to the point where the kitchen sink waste piping extends above the floor. The clean out above the floor shall be the same size as the underground kitchen sink waste piping and shall be thirty-six (36") inches above the finished floor level.

707.4 Location. Each horizontal drainage pipe shall be provided with a cleanout at its upper terminal and each run of piping, that is more than one hundred (100') feet (30480 mm) in total developed length, shall be provided with a cleanout for each one hundred (100') feet (30480 mm), or fraction thereof, in length of such piping. An additional cleanout shall be provided in a drainage line for each aggregate horizontal change of direction exceeding 135 degrees (2.36 rad). A cleanout shall be installed above the fixture connection fitting, serving each urinal, regardless of the location of the urinal in the building.

Exceptions:

1. Cleanouts may be omitted on a horizontal drain line less than five (5') feet (1524 mm) in length unless such line is serving sinks or urinals.

2. Cleanouts may be omitted on any horizontal drainage pipe installed on a slope of seventy-two (72°) degrees (1.26 rad) or less from the vertical angle (angle of one-fifth (1/5) bend).

3. Excepting the building drain and its horizontal branches, a cleanout shall be required on any pipe or

piping, which is above the floor level a minimum of three feet (3') above the lowest floor of the building and above each individual urinal.

(A) In residential buildings of slab floor construction or where a stack cleanout is not accessible, the cleanout shall be installed in the building drain and shall terminate not more than five feet (5') outside the building wall.

4. An approved type of two-way cleanout fitting, installed inside the building wall near the connection between the building drain and building sewer or installed outside of a building at the lower end of a building drain and extended to grade, shall be substituted for an upper terminal cleanout.

710.1 Backflow Protection. Where a fixture is installed on a basement level or floor level that is lower than the next upstream manhole cover of the public or private sewer serving such drainage piping, shall be protected from backflow of sewage by at a minimum installing an approved type of backwater valve or installing, when required by The Authority Having Jurisdiction, a plumbing line supported from floor joists by approved hangers serving that basement level or floor level (strapped plumbing) receiving the discharge from an approved watertight sump or receiving tank. (see strapped plumbing drawings, Figure 17 and figure 18 in Appendix "M"). Fixtures on floor levels above the upstream manhole cover such elevation shall not discharge through the backwater valve or into the lower level, approved watertight sump or receiving tank, but instead, shall drain by gravity to the public sewer.

Cleanouts for drains that pass through a backwater valve shall be clearly identified with a permanent label stating, "Backwater Valve Downstream".

710.2 Sewage Discharge. Drainage piping serving fixtures that are located below the crown level of the main sewer shall discharge into an approved watertight sump or receiving tank, so located as to receive the sewage or wastes by gravity. From such sump or receiving tank, the sewage or other liquid waste shall be lifted and discharged into the building drain or building sewer by approved ejectors, pumps, or other equally efficient approved mechanical devices.

Note: For clarification

1. Fixtures above the upstream manhole cover drain by gravity.

2. Fixtures below the upstream manhole cover and above the crown of the sewer, drain by gravity through a backwater valve, or as directed by the Authority Having Jurisdiction shall drain as indicated in item 3 below.

3. Fixtures below the upstream manhole and below the crown of the sewer shall be lifted and discharged into the building drain or building sewer by means of an approved pumping system (strapped plumbing).

710.6 Backwater valves. Backwater valves, gate valves, unions, full-way ball valves, motors, compressors, air tanks, and other mechanical devices required by this section shall be located where they will be accessible for inspection and repair at all times and, unless continuously exposed, shall be watertight, enclosed in a masonry pit, or a pit of Concrete, metal, or other approved material, construction, and manufacture, fitted with an adequately sized removable cover.

Backwater valves shall comply with ASME A112.14.1 have bodies of cast iron, plastic, copper alloy, or other approved materials, shall have non-corrosive bearings, seats and self-aligning discs, and shall be so constructed as to ensure a positive mechanical seal. Such valves shall remain sufficiently open during periods of low flows to avoid screening of solids and shall not restrict capacities or cause excessive turbulence during peak loads. Unless otherwise listed, valve access covers shall be bolted type with gasket and each valve shall bear the manufacturer's name cast into body and cover.

Alternate design of Backwater Valves that may be adequately serviced without installation in a pit may be used with the approval of the Authority Having Jurisdiction.

710.14 Streams and Channels. At stream and channel crossings, a minimum depth of two (2') feet shall be allowed only where greater depths cannot be achieved. Where this minimum cover cannot be achieved, Schedule 50 ductile iron pipe with restrained joints must be used unless otherwise directed by the Authority Having Jurisdiction. Stream and channel crossings must be protected with rock blanket.

712.3 Air Test. The air test shall be made by attaching an air compressor testing apparatus to any suitable opening, and, after closing all other inlets and outlets to the system, forcing air into the system until there is a uniform gauge pressure of five (5) pounds per square inch (34.5 kPa) or sufficient to balance a column of mercury ten (10") inches (254 mm) in height. The pressure shall be held without introduction of additional air for a period of at least fifteen (15) minutes. Plastic

pipe and fittings may be tested under this paragraph with the approval of the Authority Having Jurisdiction and must conform to requirements of the manufacturer.

713.1.1 House/building traps (vent traps). A house/building (vent) trap shall be installed on individual and combined, sanitary and storm house sewer laterals connected to the public sewer system. (See Section 1008.0).
Exception: Building/House traps shall be installed on individual and combined, sanitary and storm house/building laterals connected to combined sewers, and where required by the Authority Having Jurisdiction. Each building trap when installed shall be provided with a cleanout and with a relieving vent or fresh air intake on the inlet side of the trap which need not be larger than one-half (1/2) the diameter of the drain to which it connects. Such relieving vent or fresh air intake shall be carried to finish grade and terminate in a screened outlet located outside the building.

Delete *Section 713.2* of the UPC 2021 - Reference to Private Disposal System.

715.1 Materials. The building sewer, beginning five (5') feet (1525 mm) from any building or structure, shall be of such materials as may be approved by the Authority Having Jurisdiction under the approval procedures set forth in Chapter 3 of this Code. Sewer laterals exceeding one hundred (100') feet shall include a full-size cleanout, maximum size shall be eight (8") inches, to surface within ten (10') feet of anticipated location of the building foundation wall or the first (1st) story exterior wall of a slab on grade building.

717.0 Size of Building Sewers. The minimum size of any building sewer shall be determined on the basis of the total number of fixture units drained by such sewer, in accordance with 717.1. No building sewer shall be smaller than the building drain, but in no case less than six (6") inches (152 mm) and at a uniform minimum slope of 2 percent (2%).
For alternate methods of sizing building sewers, see Appendix C.

718.3 Protection from Damage. No building sewer or other drainage piping or part thereof, which is constructed of materials other than those approved for use under or within a building, shall be installed under or within five (5') feet (1525 mm) of any building or structure, or part thereof, nor less than thirty (30") inches below the surface of the ground.

1. Exception: Transition from building drain to building sewer at a maximum of 45°.

2. Exception: Where necessary to connect to a drainage line above ground.
The provisions of this subsection include structures such as porches and steps, whether covered or uncovered, breezeways, roofed porte-cocheres, roofed patios, carports, covered walks, covered driveways, and similar structures or appurtenances.

719.0 Cleanouts.

719.6 Manholes. Approved manholes shall be permitted to be installed in lieu of cleanouts when first approved by the Authority Having Jurisdiction. The maximum distance between manholes shall not exceed four hundred (400') feet (121.9 m). Connections to manholes shall be by approved method.

720.0 Sewers and Water Pipes. Building sewers or drainage piping of clay or materials, which are not approved for use within a building, shall not be run or laid in the same trench as the water pipes.
Exception: The underground water service pipe and the building sewer shall not be less than ten feet (10') apart horizontally and shall be separated by undisturbed or compacted earth. The water service pipe may be placed in the same trench with the outside building sewer and water piping may be placed in the same trench with the inside building drain provided approval is given by the Authority Having Jurisdiction and both the following requirements are met:

1. The bottom of the water pipe, at all points, shall be at least twelve (12") inches (305 mm) above the top of the sewer or drain line.

2. The water pipe shall be placed on a solid shelf excavated at one side of the common trench with a minimum clear horizontal distance of at least twelve (12") inches (305 mm) from the sewer or drain line. Water pipes crossing sewer or drainage piping constructed of clay or materials, which are not approved for use within a building, shall be laid a minimum of twelve (12") inches (305 mm) above the sewer or drainpipe.
Note: For the purpose of this section, "within the building" shall mean within the fixed limits of the building foundation.

722.0 Abandoned Sewers and Sewage Disposal Facilities.

722.1 Building (House) Sewer. Every abandoned building (house) sewer, or part thereof, shall be plugged or capped in an approved manner at the connection to the sewer main or at a location acceptable to the Authority Having Jurisdiction.

722.2 Cesspools, Septic Tanks, and Seepage Pits. Every cesspool, septic tank, and seepage pit which has been abandoned or has been discontinued otherwise from further use or to which no waste or soil pipe from a plumbing fixture is connected, shall have the sewage removed there from and disposed of in a manner required by law, the bottom broken out and be completely filled with compacted earth, sand, gravel, concrete, or other approved material.

TABLE 721.1
Minimum Horizontal Distance Required From Building Sewer (feet)

Buildings or Structures[1]	2 feet (610 mm)
Property line adjoining private property	Clear[2]
Water Supply Wells	100 feet[3] (30,480 mm)
Streams	50 feet (15,240 mm)
On-site domestic water line	10 feet[4] (3048 mm)
Public Water Main	10 feet[5,6] (3048 mm)

1. Including porches and steps, whether covered or uncovered, breezeways, roofed porte cocheres, roofed patios, carports, covered walks, covered driveways, and similar structures and appurtenances.

(B) See also Section 312.3

3. All drainage piping shall clear domestic water supply wells by at least one hundred (100') feet (30480 mm) (15240).

4. See Section 720.0

5. For parallel construction.

6. For crossings, approval by the Health Department or Authority Having Jurisdiction shall be required.

CHAPTER 8
INDIRECT WASTE

Amendments to the Uniform Plumbing Code™ - Chapter 8 - Indirect Wastes. - Chapter 8 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

801.3.3 Food-Handling Fixtures. Food-preparation sinks; steam kettles, potato peelers, ice cream dipper wells, dishwashing machines, silverware washing machines, and similar equipment shall be indirectly connected to the drainage system by means of an air gap or air break. Bins, sinks, and other equipment having drainage connections and used for the storage of unpackaged ice used for human ingestion or used in direct contact with ready-to-eat food, shall be indirectly connected to the drainage by means of an airgap. Each indirect waste pipe from food handling fixtures or equipment shall be separately piped to the indirect waste receptor and shall not combine with other indirect waste. The piping from the equipment to the receptor shall not be less than the drain on the unit, but it shall not be smaller than one (1") inch (25.4 mm).

803.3 Pipe Size and Length. Except as hereinafter provided, the size and construction of indirect waste piping shall be in accordance with other sections of this Code applicable to drainage and vent piping. No vent from indirect waste piping shall combine with any sewer-connected vent but shall extend separately to the outside air. Indirect waste pipes exceeding five (5') feet (1524 mm), but less than fifteen (15') feet (4572 mm) in length shall be directly trapped, but such traps need not be vented. Indirect waste pipes less than fifteen (15') feet (4572 mm) in length shall not be less than the diameter of the drain outlet or tailpiece of the fixture, appliance, or equipment served, and in no case less than one (1") inch (25.4 mm) in size. Angles and changes of direction in indirect waste pipes of more than fifteen (15') feet shall be provided with cleanouts so as to permit flushing and cleaning.

1. A direct connection for a floor drain at the automatic clothes washer above ground may be discharged into the riser-pipe (standpipe) above the trap of the automatic clothes washer drain and the floor drain shall not be trapped.

2. A laundry sink on ground floor may discharge, un-trapped, directly into the washer standpipe above the trap with no vent required.

804.1 Standpipe Receptors. Plumbing fixtures or other receptors receiving the discharge of indirect waste pipes shall be approved for the use proposed, shall be of such shape and capacity as to prevent splashing or flooding and shall be located where they are readily accessible for inspection and cleaning. No standpipe receptor for a clothes washer shall extend more than 30 inches (762 mm), or not less than 18 inches (457 mm) above its trap weir. No trap for a clothes washer standpipe receptor shall be installed below the floor but shall be roughed in not less than 6 inches (152 mm) and not more than 18 inches (457 mm) above the floor. No indirect waste receptor shall be installed in a toilet

room, closet, cupboard, or storeroom, nor in a portion of a building not in general use by the occupants thereof; except standpipes for clothes washers shall be permitted to be installed in toilet and bathroom areas where the clothes washer is installed in the same room.

807.0 Appliances.

807.3 Domestic Dishwashing Machine. The discharge from a sink, dishwasher, and garbage disposal (food-waste-grinder) may discharge through a single one and one-half (1½") trap. The discharge from the dishwasher shall be a full-sized opening, which shall be a minimum of five eighths inch (5/8") inside diameter in size, looped up and firmly secured to the highest point under the counter and be connected with a wye fitting between the discharge of the garbage disposal (food-waste-grinder) and the trap inlet, or to the head of the garbage disposal (food waste-grinder). An approved dishwasher air gap fitting on the discharge side of the dishwashing machine may be used. Listed air gaps shall be installed with the flood level (FL) marking at or above the flood level of the sink or drain board, whichever is higher. In the installation of a double bowl kitchen sink (residential) with a garbage disposal (food-waste-grinder), the fixture trap shall be installed on the same side of the sink in which the garbage disposal is installed.

CHAPTER 9
VENTS

Amendments to the Uniform Plumbing Code™ - Chapter 9 - Vents. - Chapter 9 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

904.3 Minimum Size of Stack Vent or Vent Stack. Any structure in which a building drain is installed shall have at least one stack vent or vent stack sized in accordance with Table 7 -5 not less than four inches (4") in diameter, not less than three inches (3") in diameter for one (1) and two (2) family residential, if the building drain is less than three inches (3") in diameter the vent shall be the size of the building drain carried full size through the roof. In no case shall the aggregate cross-sectional area of all vents, in the system, be less than the cross-sectional area of the largest required common building drain serving that system.

905.7 Vent Pipe Fittings Allowed. All vent piping subject to back drainage shall use fittings appropriate to the sanitary waste system.

906.1 Roof Termination. Each vent pipe or stack shall extend through its flashing and shall terminate vertically not less than twelve (12") inches (305 mm) above the roof nor less than one (1') foot (305 mm) from any vertical surface.

906.3 Use of Roof. Vent pipes shall be extended separately or combined, of full required size, not less than twelve (12") inches (305 mm) above the roof or fire wall. Flag-poling of vents shall be prohibited. All vents within ten (10') feet (3048 mm) of any part of the roof that is used for purposes other than weather protection shall extend not less than seven (7') feet (2134 mm) above such roof and shall be securely stayed.

906.7 Frost or Snow Closure. Vent terminals shall be a minimum of two (2) inches (51 mm) in diameter but in no event smaller than the required vent pipe. The change in diameter shall be made inside the building at least eighteen (18") inches below the roof in an insulated space and terminate not less than twelve (12") inches (305 mm) above the roof, or as required by the Authority Having Jurisdiction.

907.3 Residential Relief Vent. In a residential structure a relief vent shall be connected to a waste stack a minimum of six (6") inches (152 mm) below the bottom of the joist at the lowest level except when there is a plumbing vent through the roof installed from plumbing fixtures or future rough-ins below the lowest level.

908.1 Vertical Wet Venting. Except as provided for in other sections of this Code, wet venting is limited to vertical drainage piping receiving the discharge from the trap arm of one (1) and two (2) fixture unit fixtures that also serves as a vent not to exceed four (4) fixtures. All wet vented fixtures shall be within the same story; provided, further, that fixtures with a continuous vent discharging into a wet vent shall be within the same story as the wet vented fixtures. No wet vent shall exceed six (6') feet (1829 mm) in developed length.

908.1.3 See Appendix O (drawings).

909.0 Special Venting for Island Fixtures.

909.1 General. Alternate approved installation is described below and depicted in Drawing 7, Appendix O. Traps for island sinks and similar equipment shall be roughed in above the floor and may be vented by extending the vent as high as possible, and no lower than bottom of sink/fixture it serves and then returning it downward and connecting it to the horizontal sink

drain more than five (5') feet (1524 mm) downstream from the vertical fixture drain. The return vent shall be connected to the horizontal drain through a wye-branch fitting. Drainage fittings shall be used on all parts of the vent and a minimum slope of one-quarter (1/4") inch per foot (20.9 mm/m) back to the drain shall be maintained. Pipe sizing shall be as elsewhere required in this Code with minimum size to be two (2") inch (51 mm). The island sink drain, upstream of the return vent, shall serve no other fixtures. An accessible cleanout shall be installed in the vertical portion of the vent.

909.2 Acceptable Alternate Vent Piping. Traps for island sinks and similar equipment shall be roughed in above the floor and shall be permitted to be vented by extending the vent as high as possible, but not less than the drainboard height and not lower than the bottom of the sink, fixture or both that it serves. using a 90 degree 11.57 rad) elbow piping at not less than 1 inch per foot (20.8 mm/m) horizontal not less than 12 inches (305 mm) then using a 90 degree (1.57 rad) elbow returning it downward and connecting it to the horizontal sink drain by means of a wye branch and not less than 5 feet 11524 mm) downstream of the branch to the sink waste to the horizontal drain through a wye-branch fitting and any necessary 45 degree <0.79 rad) fittings. All piping shall be 2 inches (51 mm) or more in size unless the trap for the island sinks, or similar equipment, or both requires a larger size and shall be sized as elsewhere required in this Code maintaining the minimum size. No other fixtures shall be permitted to be connected to the horizontal drain prior to being connected to the venting system. An accessible cleanout shall be installed in the vertical portion of the foot vent.

CHAPTER 10
TRAPS AND INTERCEPTORS

Amendments to the Uniform Plumbing Code™ - Chapter 10 - Traps and Interceptors. - Chapter 10 of the 2021 Uniform Plumbing Code™ are amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

TABLE 1002.2
Horizontal Length of Trap Arms
(Except for water closets and similar fixtures) *

TRAP ARM	DISTANCE TRAP TO VENT	TRAP ARM	DISTANCE TRAP TO VENT
Inches	**Feet - Inches**	**mm**	**mm**
1-1/4	3'-6"	32	1067
1-1/2	5'-0"	38	1524
2	8'-0"	51	2438
3	10'-0"	76	3048
4 & Larger	12'-0"	102 & Larger	3658

Slope one-fourth (1/4") inch per foot (20.9 mm/m)
*The developed length between the trap of a water closet or similar fixture (measured from the top of the closet ring {closet flange} to the inner edge of the vent) and its vent shall not exceed six (6') feet (1829 mm)

1003.3 Size. The size (nominal diameter) of a trap for a given fixture shall be sufficient to drain the fixture rapidly, but in no case less than nor more than one pipe size larger than given in Table 702.1. The trap shall be the same size as the trap arm to which it is connected.
Exception: One (1) and two (2) fixture unit fixtures may have trap arms one size larger than the trap size serving the fixture.

1008.0 Building/House Traps. Building/House traps may be installed.
Exception: Building/House traps shall be installed on individual and combined, sanitary and storm house/building laterals connected to combined sewers, and where required by the Authority Having Jurisdiction.
Each building trap when installed shall be provided with a cleanout and with a relieving vent or fresh air intake on the inlet side of the trap which need not be larger than one-half the diameter of the drain to which it connects. Such relieving vent or fresh air intake shall be carried to finish grade and terminate in a screened outlet located outside the building.

1009.5 Location. Each interceptor (clarifier) cover shall be readily accessible for servicing and maintaining the interceptor (clarifier) in working and operating condition. Interceptors (clarifiers) shall include means for visual inspection and access from above for both the influent and effluent sides. Manholes (24 inches (24") in diameter, 24 inches (24") maximum in length including a roadway access cover) shall be provided for access to each compartment of an interceptor. Where depth is more than 24 inches (24"), a 36 inch (36") minimum diameter access with steps shall be provided as approved by the authority having jurisdiction. The use of

ladders or the removal of bulky equipment in order to service interceptors (clarifiers) shall constitute a violation of accessibility. Location of all interceptors (clarifiers) shall be shown on the approved building plan.

1014.1.3 Food Waste Disposal Units and Dishwashers. Food Waste Disposal Units, rinse sinks and or Dishwashers are required to connect into a grease interceptor and they must first flow through a solids trap.

1014.2 Hydromechanical Grease Interceptors.

1014.2.3 Each grease trap required by this section shall have an approved rate of flow which is not less than that as determined by 1014.2.1 for sinks and Table 1014.2.1 for the total number of connected fixtures. The total capacity in gallons (L) of fixtures discharging into any such grease trap shall not exceed two and one-half (2-1/2) times the certified gpm (L/s) flow rate of the grease trap as determined by 1014.2. Any grease trap installed with the inlet more than four (4') feet (1219 mm) lower in elevation than the outlet of any fixture discharging into such grease trap shall have an approved rate of flow which is not less than fifty (50%) percent greater than that given in Table 1014.2.1. For hydromechanical grease interceptors installed inside the building or tenant space, the number of fixtures connected to or discharged into anyone (1) hydromechanical grease interceptor shall not exceed the maximum DFU or operating flow rate of the hydromechanical grease interceptor. Floor drains receiving incidental water are not included as a fixture for the purposes of this paragraph.

Table 1014.2.1
HYDROMECHANICAL GREASE INTERCEPTOR SIZING USING GRAVITY FLOW RATES

		Size of grease interceptor	
Dia. of grease waste pipe	**Maximum full pipe flow**	**One-minute drainage period**	**Two-minute drainage period**
2	20	20	10
3	60	75	35
4	125	150	75
5	230	250	125
6	375	400	200

1014.3.5 Construction Requirements.

1014.3.5.1 Purpose. Gravity grease interceptors shall be designed to remove grease from effluent and shall be sized in accordance with this section. Gravity grease interceptors shall also be designed to retain grease until accumulations can be removed by pumping the interceptor. Each gravity grease interceptor shall pass through an inspection manhole, prior to any connection to the public sewer.

1014.3.5.1.1 Components and Materials. Gravity grease interceptors shall be constructed of cast iron or steel when protected, inside and out, by an approved corrosion resistant coating. Precast Concrete interceptors shall be constructed with a minimum wall thickness of 4", concrete strength equal to minimum 4000 PSI at 28 days of age, shall have a maximum water to cementitious ratio (w/c) of 0.45, and the entire interior, including all fittings, bolts, and appropriate connections shell be protected by a corrosion resistant coating with a minimum thickness of 18 Mil. Polyethylene prefabricated interceptors shall comply with the requirements set forth in paragraph 4.3 of IAPMO/ANSI Z1001. Fiberglass interceptors shall meet IAPMO/ANSI Z1001 for Grease Interceptors and be constructed with resins that comply with ASTM C-581. Poured concrete interceptors are prohibited. Each interceptor shall be of watertight construction and be provided with a non-perforated cover non-bolted or bolted into place, made gas and watertight.

1014.3.6 Sizing Criteria. Accredited third party systems (IAPMO, PDI) shall be sized using Table 1014.3.6. Where drainage fixture units (DFUs) are not known, the interceptor shall be sized based on the maximum DFUs allowed for the pipe size connected to the inlet of the interceptor and/or the Manufacturer's published sizing criteria and recommendations.
Refer to Table 703.2, Drainage Piping, Horizontal.
Non-Certified systems shall be sized based on calculations in gallons of effective capacity, provided that the total wet volume is not less than 500 gallons and provides a minimum retention time of 30 minutes based on drainage fixture units as determined by Table 1014.3.6.

1016.0 Sand Interceptors.

1016.1 Discharge. Where the discharge of a fixture or drain contains solids or semi-solids heavier than water that would be harmful to a drainage system or cause a stoppage within the system, the discharge shall be through a sand interceptor, or combination Sand/Gas/Oil interceptor. Multiple floor drains shall be permitted to discharge into one sand/solids interceptor. Sand interceptors shall be required where a floor drain or multiple floor drains discharge(s) through an oil interceptor, or where the discharge of a floor drain may contain solids or semi-solids that would be harmful to or tend to obstruct the system. A sand interceptor shall

be installed in front of a gas/oil interceptor unless the gas/oil interceptor is designed as a combination sand/gas/oil interceptor to handle sediment and solids. Human waste is prohibited from entering an interceptor.

1016.2 Authority Having Jurisdiction. Sand or solids interceptors are required where the Authority Having Jurisdiction deems it advisable to have a sand or solids interceptor to protect the drainage system.

1016.3 Construction and Size. Sand or Solids interceptors shall be built of prefabricated coated steel, precast concrete where the entire interior including all fittings, bolts and appropriate connections are treated with a corrosion resistant coating, fiberglass, or other watertight material. The interceptor shall have an interior baffle for full separation of the interceptor into two sections. The outlet pipe shall be the same size as the inlet pipe of the sand or solids interceptor, the minimum being 3 inches (80 mm), and baffle shall have at least one opening equal to the diameter of the inlet pipe and at the same invert as the outlet pipe. The opening(s) shall be staggered so that there cannot be a straight-line flow between the inlet pipe and the outlet pipe. The invert of the inlet pipe shall be no lower than the invert of the outlet pipe. The sand interceptor shall have a minimum dimension of 2 square feet (0.2 m^2) for the net free opening of the inlet section and a minimum depth under the invert of the outlet pipe of 2 feet (610 mm). For each 5 gpm (0.3 L/s) flow or fraction thereof over 20 gpm (1.26 L/s), the area of the sand interceptor inlet section is to be increased by 1 square foot (0.09 m^2). The outlet section, in two or more compartment systems shall at all times have a minimum area of 50 percent of the inlet section. The outlet section shall be covered by a solid removable cover, set flush with the finished floor, and the inlet section shall have an open grating, set flush with the finished floor and suitable for the traffic in the area in which it is located.

1017.0 Oil and Flammable Liquids Interceptors.

1017.1 Interceptors Required. All parking structures, repair garages and gasoline stations with grease racks or grease pits, and all factories which have oily, flammable, or both types of wastes as a result of manufacturing, storage, maintenance, repair or testing processes, shall be provided with an oil or flammable liquid interceptor which shall be connected to all necessary floor drains. The separation or vapor compartment shall be independently vented to the outer air. If two (2) or more separation or vapor compartments are used, each shall be vented to the outer air or may connect to a header which is installed at a minimum of six (6") inches (152 mm) above the spill line of the lowest floor drain and vented independently to the outer air. The minimum size of a flammable vapor vent shall not be less than two (2") inches (51 mm), and when vented through a sidewall, the vent shall not be less than ten (10') feet (3048 mm) above the adjacent level at an approved location. The interceptor shall be vented on the sewer side and shall not connect to a flammable vapor vent. All oil and flammable interceptors shall be provided with gastight cleanout covers, which shall be readily accessible. The waste line shall not be less than three (3") inches (76 mm) in diameter with a full-size cleanout to grade an interceptor which is provided with an overflow, shall be provided with an overflow line (not less than two (2") inches (51 mm) in diameter) to an approved exterior waste oil tank having a minimum capacity of five hundred fifty (550) gallons (2080 L) and meeting the requirements of the Authority Having Jurisdiction. The waste oil from the separator shall flow by gravity or shall be pumped to a higher elevation by an automatic pump. Pumps shall be adequately sized and accessible. Waste oil tanks shall have a two (2") inch (51 mm) minimum pump-out connection at grade and a one and one-half (1-1/2") inch (38 mm) minimum vent to atmosphere at an approved location at least ten (10') feet 3048 mm) above grade.

Non-Certified systems shall be sized based on maximum fixture flow, provided that the total wet volume is not less than 500 gallons and provides a minimum retention time of 30 minutes based on peak flow, where peak flow is greater of the flow rate based on drainage fixture units as determined by Table 1014.3.6.

1017.2.1 Components and Materials. Gas, Oil, and Flammable Liquid interceptors shall be constructed of cast iron or steel when protected, inside and out, by an approved corrosion resistant coating. Precast Concrete interceptors shall be constructed with a minimum wall thickness of 4", concrete strength equal to minimum 4000 PSI at 28 days of age, shall have a maximum water to cementitious ratio (w/c) of 0.45, and the entire interior, including all fittings, bolts, and appropriate connections shell be protected by a corrosion resistant coating with a minimum thickness of 18 Mil. Polyethylene prefabricated interceptors shall comply with the requirements set forth in paragraph 4.3 of IAPMO/ANSI Z1001. Fiberglass interceptors must meet IAPMO/ANSI Z1001 for Grease Interceptors and shall be constructed with resins that comply with ASTM

C-581. Poured concrete interceptors are prohibited. Each interceptor shall be of watertight construction and be provided with a non-perforated cover non-bolted or bolted into place, made gas and watertight.

1017.3 Combination Oil and Sand Interceptor. A combination oil and sand interceptor 20 may be installed when the Authority Having Jurisdiction approves the design.

CHAPTER 11
STORM DRAINAGE

Amendments to the Uniform Plumbing Code™ - Chapter 11 - Storm Drainage. - Chapter 11 of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto. If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

1101.8 Areaway Drains. All open subsurface space adjacent to a building, serving as an entrance to the basement or cellar of a building, shall be provided with a drain or drains. Such areaway drains shall be three (3") inches (76 mm) minimum diameter for areaways not exceeding one hundred (100') square feet (9.3 m^2) in area and shall be discharged in the manner provided for subsoil drains not serving continuously flowing springs or ground water (see Section 1101.5.2). Areaways in excess of one hundred (100') square feet (9.3 m^2) shall not drain into subsoil. Areaway drains for areaways exceeding one hundred (100') square feet (9.3 m^2) shall be sized according to Table 1101.8.

1101.12.1 Primary Roof Drainage. Roof areas of a building shall be drained by roof drains or gutters. The location and sizing of drains and gutters shall be coordinated with the structural design and pitch of the roof. Unless otherwise required by the Authority Having Jurisdiction, roof drains, gutters, vertical conductors or leaders, and horizontal storm drains for primary drainage shall be sized based on a storm rate of six (6") inches per hour of sixty (60) minutes duration and 100-year return period. Refer to Table D-1 (in Appendix D) for 100-year, 60-minute storms at various locations.

1101.12.2.1 Roof Scuppers or Open Side. Where parapet walls or other construction extend above the roof and create areas where storm water would become trapped if the primary roof drainage system failed to provide sufficient drainage, an independent secondary roof drainage system consisting of scuppers, standpipes, or roof drains shall be provided. Discharge from secondary roof drains onto any area which may be occupied by persons or vehicles shall not be allowed to fall more than three (3) feet above the ground. Secondary roof drainage systems shall be sized in accordance with Section 1101.12.1 as amended by this Code. Overflow drains shall be the same size as the roof drains with the inlet flow line two (2") inches (51 mm) above the low point of the roof and shall be installed independent from the roof drains.

1101.12.2.2.1 Separate Piping System. The secondary roof drainage system shall be a separate system of piping, independent of the primary roof drainage system. The discharge shall be above grade, in a location observable by the building occupants or maintenance personnel. Discharge from secondary roof drains onto any area which may be occupied by persons or vehicles shall not be allowed to fall more than three (3) feet above the ground. Secondary roof drain systems shall be sized in accordance with Section 1101.11.1 based on the rainfall rate for which the primary system is sized.

No part of the primary roof drainage system such as drains, scuppers, piping, gutters, or appurtenances, which is a part of the primary roof drainage system, may be used in the design or installation of the secondary roof drainage system.

1101.12.3 When approved by the Authority Having Jurisdiction, the requirements of Sections 1101.12.1 as amended and 1101.12.2 shall not preclude the installation of an engineered roof drainage system that has sufficient capacity to prevent water from ponding on the roof in excess of that allowed in the roof structural design with a rainfall rate of at least twice a rate of six (6") inches per hour, and with a blockage in any single point in the storm drainage system.

1101.13.1 Rain Leaders and Conductors. Rain leaders and conductors connected to a building storm sewer shall have a cleanout installed at the base of the outside leader or outside conductor and a minimum of three (3') feet and a maximum of five (5') feet above the finished floor on all inside conductors and interior downspouts, before it connects to the horizontal drain.

1101.13.2 Conductors installed above ground in buildings shall be in accordance with the applicable standards reference in Table 701.2 for above ground drain, waste and vent pipe.

1101.16.2 Combining Storm with Sanitary Drainage. The sanitary and storm drainage system of a building shall be entirely separate, except where a combined sewer is used, in which case the building storm drain shall be connected in the same horizontal plane through a single wye fitting to the combined building sewer not less than 10 feet (3048 mm) downstream from a soil stack and outside the building and with a connection beyond the property line.

1107.2.2 Air Test. The air test shall be made by attaching an air compressor testing apparatus to a suitable opening and, after closing all other inlets and outlets to the system, forcing air into the system until there is a uniform gauge pressure of 5 pounds-force per square inch (psi) (34 kPa) or sufficient to balance a column of mercury 10 inches (34 kPa) in height. The pressure shall be held without introduction of additional air for a period of not less than 15 minutes. Plastic pipe and fittings may be tested under this paragraph with the approval of the Authority Having Jurisdiction and must conform to requirements of the manufacturer.

1107.2.3 Exceptions: When circumstances exist that make water tests, described in Section 1106.2.1 and Section 1106.2.2 impractical, and for minor maintenance, repairs and installations, the Authority Having Jurisdiction may perform the inspection tested under conditions approved by the Authority Having Jurisdiction to assure that the work has been in accordance with provisions of this Code.

CHAPTER 12
FUEL PIPING

Amendments to the Uniform Plumbing Code™ - Chapter 12 - Fuel Piping - Chapter 12 of the 2021 Uniform Plumbing Code™ is adopted and is included in this Plumbing Code for permitted installations under this ordinance. Where differences between the Plumbing Code and The St. Louis City Mechanical Code occur, The St. Louis City Mechanical Code shall govern the installation of FUEL PIPING.

CHAPTER 13
HEALTH CARE FACILITIES AND MEDICAL GAS AND MEDICAL VACUUM SYSTEMS

Amendments to the Uniform Plumbing Code™ - Chapter 13 - Health Care Facilities and Medical Gas and Medical Vacuum Systems - Chapter 13 of the 2021 Uniform Plumbing Code™ is [not] adopted and is included in the Plumbing Code for permitted installations under this ordinance. Where differences between the Plumbing Code and The St. Louis City Mechanical Code occur, The St. Louis City Mechanical Code shall govern installation of Medical Gas Systems.

CHAPTER 14
FIRESTOP PROTECTION

Amendments to The Uniform Plumbing Code™ - Chapter 14 - Firestop Protection - Chapter 14 of the 2021 of the Uniform Plumbing Code™ is adopted. All fire-stop protection shall be done in accordance with the Building Code. Where differences between the Plumbing Code and The St. Louis City Building Code occur, The St. Louis City Building Code shall govern the installation. Reference to these requirements in the Plumbing Code does not establish a code requirement regarding licensing of the person(s) who install firestop materials.

CHAPTER 16
NONPOTABLE CATCHMENT SYSTEMS

Adopt Chapter 16 with changes from 2018

1601.2 System Design. Rainwater catchment systems shall be designed in accordance with this chapter by a licensed plumbing contractor or registered design professional. Components, piping, and fittings used in a rainwater catchment system shall be listed.

1603.5 Minimum Water Quality. The minimum water quality for harvested rainwater shall meet the applicable water quality requirements for the intended applications as determined by the Authority Having Jurisdiction. In the absence of water quality requirements determined by the Authority Having Jurisdiction, the minimum treatment and water quality shall be in accordance with Table 1603.5.

Exception: No treatment is required for rainwater used for subsurface or nonsprinkled surface irrigation where the maximum storage volume is less than 360 gallons (1363 L).

1603.5.1 Treatment. If the quality of the tested water cannot consistently be maintained at the minimum levels specified in Table 1603.5, then the system shall be equipped with an appropriate treatment device meeting applicable NSF standards referenced in Chapter 17.

CHAPTER 17
REFERENCED STANDARDS

Chapter 17 Amended

The standards referenced in Chapter 17 of the 2021 Uniform Plumbing Code™ are accepted as recognized standards only and shall be used only to define a product for discussion and reference. The appearance of items in Chapter 17 does not imply acceptance or allow for their use.

CHAPTER 18
POTABLE WATER SUPPLY SYSTEMS

18.0 The installation of potable water systems shall be performed in accordance with the standards and procedures established by the Missouri Department of Natural Resources, with the AHJ, and with the following requirements:

18.1 Permits Required.

1. A permit is required for the installation of a well. Permits shall be issued by the Missouri Department of Natural Resources. Failure to secure proper permits by the well driller shall be a violation of this Code.

2. It is unlawful for any person or entity to engage in or perform the work of installing potable water piping from a point two feet (2') beyond the upper well terminal seal to the last potable connection or point of discharge without first registering with St. Louis City, a proper and valid DNR permit for the well drilling on the premises and the required fee, which will cover the cost of processing and one (1) inspection. The installation shall be installed in accordance with this Code.

18.2 Testing of Water for Potability Required. No water system, which is supplied by a well, hall be filled nor building occupied until the source of water supply is tested and determined to be safe for human consumption. Testing shall be performed at or near the upper well terminal. Portability of the water shall be certified by a laboratory having suitable professional qualifications for the performance of such tests prior to filling of the interior water supply system, final inspection and/or occupancy of any building so supplied. The Builder, Architect, Engineer, Well Driller, Plumber and property owner shall be held jointly and/or severally responsible for compliance with this section. Failure to comply shall be a violation of this Code.

Amendments to the Appendices of the Uniform Plumbing Code 2021 Saint Louis City Ordinance Appendices

APPENDIX A
Amendments to the Uniform Plumbing Code - Appendix A - Recommended Rules for Sizing the Water Supply System

Appendix A of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix A is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX B
Amendments to the Uniform Plumbing Code - Appendix B - Explanatory Notes on Combination Waste and Vent

Appendix B of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix B is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX C
Amendments to the Uniform Plumbing Code - Appendix C - Alternate Plumbing Systems

Appendix C of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix C is accepted by the Plumbing Code as a reference only and may be used as an engineered system if approved by the Authority Having Jurisdiction.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent shall apply.

C 303.0 Fixture Unit Values for Bathroom Groups - Deleted

C 303.1 Table 303.2 Deleted

C 303.1 Table 303.3 Deleted

C 303.1 Table 304.2 Deleted

C 303.1 Table 304.2 Deleted

C 6.0 Vent System Sizing.

C 6.1 Size of Vents. The size of vent piping shall be determined from the developed length and the total number of drainage fixture units connected thereto as set forth in Table C 401.1. Vents shall not be less than one-half (1/2) the required size of the drainage pipe size served as determined by Table C 401.1 for Horizontal Fixtures and Stacks nor less than one and one-quarter (1-1/4) inches (32 mm)in diameter. The drainage system shall be vented by not less than one (1) vent pipe which shall be not less than one-half (1/2) the size of the required building drain and which shall extend from the building drain or extension of building drain to the outdoors. Vents shall be installed in accordance with Chapter 9.

C 601.0 Single Stack Vent System.

C 601.2 Stack Size. Drainage stacks shall be sized according to Table C 601.2. Not more than two water closets shall be permitted to discharge to a 3 inch (80 mm) stack. Stacks shall be uniformly sized based on the total connected drainage fixture unit load, with no reductions in size.

C 601.2.1 Stack Vent. The drainage stack vent shall have a stack vent of the same size terminating to the outdoors.

Table C 601.2 Deleted

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX D

Amendments to the Uniform Plumbing Code - Sizing Storm Water Drainage Systems

Appendix D of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix D - Sizing Storm Water Drainage Systems

Appendix D of the 2021 Uniform Plumbing Code™ is amended and included in the Plumbing Code with the following change:

a. In Table D-1 the Maximum Rates of Rainfall for St. Louis Missouri shall be 6.0 inches per hour and 0.063 GPM/Square Foot in lieu of the values listed.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX E

Amendments to the Uniform Plumbing Code - Appendix E - Manufactured/Mobile Home Parks and Recreational Vehicle Parks

Appendix E of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix E is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX F

Amendments to the Uniform Plumbing Code - Appendix F - Firefighter Breathing Air Replenishment Systems

Appendix F of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto. Appendix F is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX G
Amendments to the Uniform Plumbing Code - Appendix G - Sizing of Venting Systems

Appendix G of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix G is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX H
2021 Private Sewage Disposal System

Change Appendix H to read as follows:

Appendix H is NOT adopted and is not included in the Plumbing Code.

APPENDIX I
Installation Standards

Appendix I of the 2021 Uniform Plumbing Code™ is amended by the following provisions. Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto. The standards referenced in this Code shall be considered part of the requirements of this Code to the prescribed extent of each such reference.

The appearance of Installation Standards in this Appendix does not, by itself, authorize the use of those items unless specified elsewhere in this Code for use.

APPENDIX J
Combination of Indoor and Outdoor Combustion and Ventilation Opening Design

Appendix J of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix J is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX K
Potable Rainwater Catchment Systems

Appendix K of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix K is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX L
Sustainable Practices

Appendix L of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix L is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX M
Peak Water Demand Calculator 20

Appendix M of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so

noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix M is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX N

Impact of Water Temperature on the Potential for Scalding and Legionella Growth

Appendix N of the 2021 Uniform Plumbing Code™ is amended by the following provisions.

Each section in the UPC that corresponds to one of the following provisions is hereby deleted where so noted or amended to read as set forth below. Each section set forth below without a corresponding provision in the UPC is added thereto.

Appendix N is included in the Plumbing Code with no changes.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent requirement shall apply.

APPENDIX O

CODE ILLUSTRATIONS

Appendix O is hereby enacted and added as an additional Appendix to the 2021 Uniform Plumbing Code™

The drawings contained in Appendix O are intended to aid in the clarification of various methods, installation practices and piping configurations, which conform to the requirements of this Code.

If any conflict of interpretations, requirements, or Ordinance sections of this Chapter occur between other similar Code provisions and other St. Louis City Ordinances the more stringent shall apply.

(Ord. No. 71644, § 3, 2-20-2023.)

25.04.030 Penalty clause.

Any person who shall violate a provision of this Code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish any plumbing system of any building, structure, premises, or equipment regulated by this Code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this Code, and shall, upon conviction thereof, be punished by a fine of not more than five hundred dollars ($500.00), or by imprisonment not exceeding ninety (90) days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense.

(Ord. No. 71644, § 4, 2-20-2023.)

Chapter 25.05

BOARD OF BUILDING APPEALS

Editor's Note:

Sections 59 to 67 of Ordinance 52132 were originally codified as Sections 25.32.610 to 25.32.690. They have been recodified in this chapter at the City's suggestion.

Sections:

25.05.010 Jurisdiction.
25.05.020 Appeal procedure.
25.05.030 Stay pending appeal.
25.05.040 Inspection reports to be furnished.
25.05.050 Hearing of appeals.
25.05.060 Powers of Board of Building Appeals.
25.05.070 Action of Board of Building Appeals.
25.05.080 Powers additional to those in Building Code.
25.05.090 Judicial review for aggrieved persons.

25.05.010 Jurisdiction.

The Board of Building Appeals shall have jurisdiction to hear and decide appeals where it is alleged that there is error in any order, requirement, decision or any determination made by the Building Commissioner or the Health Commissioner in the enforcement of the "Minimum Nonresidential Standards Law." (1960 C., § 399.580; 1994 C., § 25.05.010; Ord. No. 52132, § 59, 1963.)

25.05.020 Appeal procedure.

Appeals may be taken to the Board of Building Appeals by any person aggrieved by any decision of the Building Commissioner or Health Commissioner. Such appeal shall be taken within 30 days after the decision is rendered by filing with the Building Commissioner a notice of appeal specifying the grounds therefor, and by depositing with such Commissioner the sum of $15.00

as a docket fee. The Building Commissioner or Health Commissioner shall forthwith submit to the Board a copy of this notice of appeal together with all the papers constituting the record upon which the action appealed from is taken. (1960 C., § 399.590; 1994 C., § 25.05.020; Ord. No. 52132, § 60, 1963.)

25.05.030 Stay pending appeal.

An appeal shall stay all proceedings in furtherance of the action appealed from, unless the Building Commissioner or Health Commissioner shall certify to the Board subsequent to the filing of any notice of appeal, that, by reason of the facts stated in the certificate, a stay would cause imminent peril to life or property. In such case, proceedings shall not be stayed otherwise than by the order of any court of competent jurisdiction. (1960 C., § 399.600; 1994 C., § 25.05.030; Ord. No. 52132, § 61, 1963.)

Editor's Note:

Section 126.6 of Ordinance 58032 approved March 25, 1980 provides that a restraining order may be granted by the Board of Building Appeals on application and on notice to the Building Commissioner or other City Officer whose decision is being appealed; or by a court of competent jurisdiction.

25.05.040 Inspection reports to be furnished.

The Building Commissioner and the Health Commissioner shall furnish the Board of Building Appeals, upon request, copies of reports of any or all inspections made by such officers in the matter on appeal and furnish such other information as may be available to them and requested by the Board. (1960 C., § 399.610; 1994 C., § 25.05.040; Ord. No. 52132, § 62, 1963.)

25.05.050 Hearing of appeals.

The Board of Building Appeals shall fix a time and place for the hearing of appeals. Such hearing shall be had within a reasonable time after the filing of the notice of appeal. Notice of the time and place of hearing shall be mailed to the appellant or to his attorney of record and such hearing shall not be less than 10 days after the mailing of the notice. (1960 C., § 399.620; 1994 C., § 25.05.050; Ord. No. 52132, § 63, 1963.)

25.05.060 Powers of Board of Building Appeals.

In exercising its powers, the Board of Building Appeals may reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination as ought to be made. (1960 C., § 399.630; 1994 C., § 25.05.060; Ord. No. 52132, § 64, 1963.)

25.05.070 Action of Board of Building Appeals.

The Board of Building Appeals shall act by majority vote, and a quorum shall consist of at least 5 members. The action of the Board shall not become effective until after the resolution of the Board setting forth the full reason for its decision and the vote of each member participating therein has been spread upon the minutes. Such resolutions, immediately following the Board's final decision, shall be filed in the office of the Board and shall be open to public inspection. (1960 C., § 399.640; 1994 C., § 25.05.070; Ord. No. 52132, § 65, 1963.)

25.05.080 Powers additional to those in Building Code.

The powers granted by this law to the Board of Building Appeals shall be in addition to those conferred upon it by the Building Code. (1960 C., § 399.650; 1994 C., § 25.05.080; Ord. No. 52132, § 66, 1963.)

25.05.090 Judicial review for aggrieved persons.

Any person or persons jointly or severally aggrieved by the decision of the Board of Building Appeals or any official, department, board or bureau of the City, shall be entitled to a judicial review of the decision rendered by the Board of Building Appeals as provided in the Administrative Procedure and Review Act of the State of Missouri, being RSMo 536.100 to 536.140. (1960 C., § 399.660; 1994 C., § 25.05.090; Ord. No. 52132, § 67, 1963.)

Chapter 25.06

INTERNATIONAL FIRE CODE

Editor's Note:

Ord. No. 70796, adopted July 6, 2018, adopting the 2018 International Fire Code with amendments, including Appendices B and C; repealed and replaced Ordinance No. 69600. Ord. No. 69600, §§ 1—3, adopted Nov. 1, 2013, repealed Ch. 25.06 and enacted a new chapter. The former Ch. 25.06, §§ 25.06.010—25.06.180, pertained to the fire prevention code and derived from Ord. No. 64772, §§ 1—4, 1999.

Sections:

25.06.010 Reserved.
25.06.020 Adoption.
25.06.030 Amendments.
25.06.040. Penalty.

25.06.010 Reserved.

25.06.020 Adoption.

The 2018 International Fire Code as published by the International Code Council, Inc., one copy of which

is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Fire Code, including Appendices B, C and N, is hereby adopted as the Fire Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.493, for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Fire Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in 25.06.030. If differences occur between a provision modified by this chapter and a provision adopted without modifications, then the modified provision shall control. (Ord. No. 70796, § 2, 7-6-2018.)

25.06.030 Amendments.

The 2018 International Fire Code is amended in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add a new Chapter 1 to read as follows:

CHAPTER 1

SCOPE AND ADMINISTRATION

SECTION 101 SCOPE AND GENERAL REQUIREMENTS

101.1 Title. These regulations shall be known as the Fire Code of the City of Saint Louis, hereinafter referred to as "this code."

101.2 Scope. This code establishes regulations affecting or relating to structures, processes, and premises and safeguards regarding:

1. The hazard of fire and explosion arising from the storage, handling, or use of structures, materials, or devices;

2. Conditions hazardous to life, property, or public welfare in the occupancy of structures or premises;

3. Fire hazards in a structure or on a premises from occupancy or operation;

4. Matters related to the construction, extension, repair, alteration, or removal of fire suppression or alarm systems; and

5. Conditions affecting the safety of fire fighters and emergency responders during emergency operations.

101.2.1 Appendices. Appendices B, C and N are specifically adopted.

101.3 Intent. The purpose of this code is to establish the minimum requirements consistent with nationally recognized good practice for promoting a reasonable level of life safety and property protection from the hazards of fire, explosion, or dangerous conditions in

[The next page is 25-211]

new and existing buildings, structures, and premises and to provide safety to fire fighters and emergency responders during emergency operations.

101.4 Severability. If a section, subsection, clause, or phrase of this code is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this code.

101.5 Validity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions hereof which are determined to be legal and it shall be presumed that this code would have been adopted without such illegal or invalid parts or provisions.

SECTION 102 APPLICABILITY

102.1 Construction and Design Provisions. The construction and design provisions of this code shall apply to:

1. Structures, facilities, and conditions arising after the adoption of this code.

2. Existing structures, facilities, and conditions not legally in existence at the time of adoption of this code.

3. Existing structures, facilities, and conditions which, in the opinion of the fire official, constitute a distinct hazard to life or property.

102.1.1 Existing Buildings. The legal occupancy of any structure existing on the date of the adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the Building Code, the Existing Building Code, or the Property Maintenance Code, or as deemed necessary by the building official for the general safety and welfare of the occupants and the public.

102.2 Administrative, Operational, and Maintenance Provisions. The administrative, operational, and maintenance provisions of this code shall apply to:

1. Conditions and operations arising after the adoption of this code.

2. Existing conditions and operations.

102.3 Change of Use or Occupancy. No change shall be made in the use or occupancy of any structure that would place the structure in a different division of the same group or occupancy or in a different group of occupancies unless such structure is made to comply with the requirements of this code, the Building Code, and the Existing Building Code. Subject to the approval of the building official, the use or occupancy of an existing structure shall be permitted to be changed and the structure allowed to be occupied for purposes in other groups without conforming to all the requirements of this code, the Building Code, and the Existing Building Code for those groups provided the new or proposed use falls under a lower hazard category than the existing use per Chapter 10 of the Existing Building Code.

102.4 Application of Building Code. The design and construction of new structures shall comply with the Building Code and enforced by the building official and any alterations, additions, changes in use, or changes in structures required by this code which are within the scope of the Existing Building Code shall be made in accordance therewith and enforced by the building official.

102.5 Application of Residential Code. Where structures are designed and constructed in accordance with the Residential Code for One- and Two-family Dwellings, the provisions of this code shall apply as follows:

1. Construction and design provisions: Provisions of this code pertaining to the exterior of the structure shall apply, including, but not limited to, premises identification, fire apparatus access and water supplies. Where interior or exterior systems or devices are installed, building or construction permits required by Section 105.7 of this code shall also apply.

2. Administrative, operational, and maintenance provisions: All such provisions of this code shall apply.

102.6 Historic buildings. The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation, or moving of buildings or structures shall not be mandatory for existing buildings or structures designated as historic buildings, landmarks, or contributing resources to an historic district by state or national jurisdictions or City of Saint Louis ordinances when such buildings or structures do not constitute a distinct hazard to life or property. Fire protection in designated historic buildings and structures shall be provided in accordance with an approved fire protection plan.

102.7 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference. Where differences occur between provisions of this code and referenced standards, the provisions of this code shall

apply. Reference standards shall be permitted to be updated by the rule making authority of the building official.

102.8 Subjects Not Regulated by This Code. Where no applicable standards or requirements are set forth in this code, or are contained within other laws, codes, regulations, ordinances, or bylaws adopted by the City of Saint Louis, compliance with applicable standards of the National Fire Protection Association or other nationally recognized fire safety standards, as approved, shall be deemed as prima facie evidence of compliance with the intent of this code. Nothing herein shall derogate from the authority of the fire official to determine compliance with codes or standards for those activities or installations within the fire official's jurisdiction or responsibility.

102.9 Matters Not Provided For. Requirements that are essential for the public safety of an existing or proposed activity, building, or structure, or for the safety of the occupants thereof which are not specifically provided for by this code shall be determined by the fire official.

102.10 Conflicting Provisions. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in a specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

102.11 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law.

102.12 Application of References. References to chapter or section numbers or to provisions not specifically identified by number shall be construed to refer to such chapter, section, or provision of this code.

SECTION 103 FIRE SAFETY UNIT

103.1 General. The Fire Safety Unit is established within the City of Saint Louis under the direction of the Director of Public Safety and the Building Commissioner. The function of the Fire Safety Unit shall be the implementation, administration, and enforcement of the provisions of this code.

103.2 Appointment. The fire official shall be appointed under the rules of the Civil Service Commission.

103.3 Organization. The fire official shall appoint such number of officers, technical assistants, inspectors and other employees as is necessary for the administration of this code and as authorized by the appointing authority.

103.3.1 Deputy. The fire official is authorized to designate an employee as deputy who shall exercise all of the powers of the fire official during the temporary absence or disability of the fire official.

103.3.2 Restriction of Employees. An official or employee connected with the enforcement of this code, except one whose only connection is that of a member of the Board of Building Appeals established under the Building Code, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building or the preparation of construction documents thereof unless that person is the owner of the building or a first degree relative of the owner of the building; nor shall such officer or employee engage in any work which conflicts with official duties or with the interests of the Division of Building and Inspection.

Further, no Building Division employee shall be employed by or serve as an employee of any other division within the City service unless a formal request is made by the Building Commissioner to and approved by the appointing authority of that Division.

103.4 Relief from Personal Responsibility. The building/fire official or employee charged with the enforcement of this code, while acting for the jurisdiction, shall not thereby be rendered liable personally, and is hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act required or permitted in the discharge of official duties. Any suit instituted against any employee because of an act performed by that person in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordinates shall not be liable for costs or judgment in any action, suit, or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection acting in good faith and without malice shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

SECTION 104 GENERAL AUTHORITY AND RESPONSIBILITIES

104.1 General. The fire official is hereby authorized to enforce the provisions of this code and shall have the authority to render interpretations of this code and to adopt policies, procedures, rules, and regulations in order to clarify the application of its provisions. Such interpretations, policies, procedures, rules, and regulations shall be in compliance with the intent and purpose of this code and shall not have the effect of waiving requirements specifically provided for in this code.

104.1.1 Enforcement. For purposes of the referenced sections, the designated enforcement agency shall be considered to be the "fire official" when used in that section.

Chapter 3 (except sections 303, 305, 307, and 309): The Division of Building & Inspection Fire Safety Unit.

Sections 303, 305, 307, and 309: The Saint Louis Fire Department.

Chapter 4 (except sections 403.2.3,403.2.4,403.12.1 and 403.12.3): The Saint Louis Fire Department.

Section 403.2.3, 403.2.4, 403.12.1 and 403.12.3: The Division of Building & Inspection Fire Safety Unit and the Saint Louis Fire Department.

Chapter 5: The Saint Louis Fire Department.

Chapter 6 (except Sections 604, 607 and 608): The Division of Building & Inspection Mechanical Section.

Sections 604, 607 and 608: The Division of Building & Inspection Fire Safety Unit.

Chapter 7: The Division of Building & Inspection Plan Exam Section and Fire Safety Unit.

Chapter 8: The Division of Building & Inspection Plan Exam Section and Fire Safety Unit.

Chapter 9 (except sections 901.7, 912 and 916): The Division of Building & Inspection.

Sections 901.7, 912 and 916: The Saint Louis Fire Department.

Chapter 10: The Division of Building & Inspection Plan Exam Section and Fire Safety Unit.

Chapter 11: DELETED - See the Existing Building Code.

Chapters 12: The Division of Building & Inspection Electrical Inspection Section.

Chapters 13 through 19 are reserved.

Chapter 20: The Saint Louis Fire Department.

Chapter 21: The Saint Louis Fire Department.

Chapter 22: The Saint Louis Fire Department.

Chapter 23: The Saint Louis Fire Department.

Chapter 24: The Saint Louis Fire Department.

Chapter 25 (except Section 2504.5): The Saint Louis Fire Department.

Section 2504.5: The Division of Building & Inspection Mechanical Section.

Chapter 26: The Saint Louis Fire Department.

Chapter 27: The Saint Louis Fire Department.

Chapter 28: The Saint Louis Fire Department.

Chapter 29: The Saint Louis Fire Department.

Chapter 30: The Division of Building & Inspection Mechanical Section.

Chapter 31: The Division of Building & Inspection Fire Safety Unit.

Chapter 32: The Saint Louis Fire Department.

Chapter 33 (except Section 3305, 3306, 3307, 3310, and 3317): The Division of Building & Inspection Fire Safety Unit.

Sections 3305, 3306, 3307, 3310, and 3317: The Saint Louis Fire Department.

Chapter 34: The Saint Louis Fire Department.

Chapter 35: The Saint Louis Fire Department.

Chapter 36: The Saint Louis Fire Department.

Chapter 37: The Saint Louis Fire Department.

Chapter 38: The Saint Louis Fire Department.

Chapter 39: The Saint Louis Fire Department.

Chapters 40 through 49 are reserved.

Chapter 50: The Saint Louis Fire Department.

Chapter 51: The Saint Louis Fire Department.

Chapter 53 (except sections 5306 and 5307): The Saint Louis Fire Department.

Sections 5306 and 5307: The Division of Building & Inspection Mechanical Section.

Chapter 54: The Saint Louis Fire Department.

Chapter 55: The Saint Louis Fire Department.

Chapter 56: The Saint Louis Fire Department.

Chapter 57: The Saint Louis Fire Department.

Chapter 58: The Saint Louis Fire Department.

Chapter 59: The Saint Louis Fire Department.

Chapter 60: The Saint Louis Fire Department.

Chapter 61: The Saint Louis Fire Department.

Chapter 62: The Saint Louis Fire Department.

Chapter 63: The Saint Louis Fire Department.

Chapter 64: The Saint Louis Fire Department.

Chapter 65: The Saint Louis Fire Department.

Chapter 66: The Saint Louis Fire Department.

Chapter 67: The Saint Louis Fire Department.

104.1.2 Rule Making Authority. The Building Commissioner shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code, to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code or violating accepted engineering practice involving public safety.

104.2 Applications and Permits. The fire official is authorized to receive applications, review construction documents, and issue permits for construction regulated by this code; issue permits for operations regulated by this code; inspect the premises for which such permits have been issued; and enforce compliance with the provisions of this code.

104.3 Right of Entry. Whenever it is necessary to make an inspection to enforce the provisions of this code or whenever the fire official has reasonable cause to believe that there exists in a building or upon any premises any condition or violation of this code which makes the building or premises unsafe, dangerous, or hazardous, the fire official shall have the authority to enter the building or premises at all reasonable times to inspect or to perform the duties imposed upon the fire official by this code. If such building or premises is occupied, the fire official shall present credentials to the occupant and request entry. If such structure or premises is unoccupied, the code official shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. If entry is refused, the building official has recourse to every remedy provided by law to secure entry.

104.3.1 Warrant. When the fire official has first obtained a proper inspection warrant or other remedy provided by law to secure entry, an owner or occupant or person having charge, care, or control of the building or premises shall not fail or neglect, after proper request is made as herein provided, to permit entry therein by the fire official for the purpose of inspection and examination pursuant to this code.

104.4 Identification. The fire official shall carry proper identification when inspecting buildings, structures, or premises in the performance of duties under this code.

104.5 Notices and Orders. The fire official shall issue such notices or orders as are required to affect compliance with this code.

104.6 Official Records. The fire official shall keep official records as required by Sections 104.6.1 through 104.6.4. Such official records shall be retained for not less than three years, unless otherwise provided by other regulations.

104.6.1 Approvals. A record of approvals granted shall be maintained by the fire official and shall be available for public inspection during business hours in accordance with applicable laws.

104.6.2 Inspections. The fire official shall keep a record of each inspection made, including notices and orders issued, showing the findings and dispositions of each.

104.6.3 Fire Records. The Saint Louis Fire Department shall keep a record of fires occurring within the City of Saint Louis and of facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby together with other information as required by the fire official.

104.6.4 Administrative. Application for modification, alternative methods of materials, and the final decision of the fire official shall be in writing and shall be officially recorded in the permanent records of the fire official.

104.7 Approved Materials and Equipment. Materials, equipment, and devices approved by the fire official shall be constructed and installed in accordance with such approval.

104.7.1 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless they have been reconditioned, tested, and placed in good and proper working condition and approved by the building official.

104.7.2 Technical Assistance. To determine the acceptability of technologies, processes, products, facilities, materials, and uses attending the design, operation, or use of a building or premises subject to inspection by the fire official, the fire official is authorized to require the owner or agent to provide, without charge to the City of Saint Louis, a technical opinion and report. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory, or fire safety specialty organization acceptable to the code official and shall analyze the fire safety properties of the de-

sign, operation, or use of the building or premises and the facilities and appurtenances situated thereon to recommend necessary changes. The fire official is authorized to require design submittal to be prepared by and bear the seal, signature, and date of a licensed design professional.

104.8 Modifications. Wherever there are practical difficulties involved in carrying out provisions of this code, the fire official shall have the authority to grant modifications for individual cases upon application of the owner or owner's representative, provided the fire official shall first find that special individual reason makes the strict letter of this code impractical, that the modification is in compliance with the intent and purpose of this code, and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the Division of Building and Inspection.

104.9 Alternative Methods and Materials. The provisions of this code are not intended to prevent the installation of any material or prohibit any method of construction not specifically prescribed for in this code, provided that any such alternative has been approved. The fire official is authorized to approve an alternative material or method of construction where the fire official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety.

104.9.1 Research Reports. Supporting data, when necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

104.9.2 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the fire official shall have the authority to require tests as evidence of compliance to be made at no expense to the City of Saint Louis. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the fire official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the fire official for the period required for retention of public records.

104.10 Fire Investigation. The fire official, the Fire Department, or other responsible authority shall have the authority to investigate the cause, origin, and circumstances of any fire, explosion, or other hazardous condition. Information that could be related to trade secrets or processes shall not be made part of the public record except as directed by a court of law.

104.10.1 Assistance from Other Agencies. The Saint Louis Metropolitan Police Department and other enforcement agencies shall have the authority to render necessary assistance in the investigation of explosions and fires when requested to do so by the Saint Louis Fire Department.

104.11 Authority at Fires and Other Emergencies. The Fire Chief or officer of the Fire Department in charge at the scene of a fire or other emergency involving the protection of life or property or any part thereof, shall have the authority to direct such operation as necessary to extinguish or control any fire; perform any rescue operation; investigate the existence of suspected or reported fires, gas leaks, or other hazardous conditions or situations; or take any action necessary in the reasonable performance of duty. In the existence of such power, the Fire Chief is authorized to prohibit any person, vehicle, vessel, or thing from approaching the scene and is authorized to remove or cause to be removed or kept away from the scene any vehicle, vessel, or thing that could impede or interfere with the operations of the Fire Department and, in the judgment of the Fire Chief, any person not actually and usefully employed in the extinguishing of such fire or in the preservation of property in the vicinity thereof.

104.11.1 Barricades. The Fire Chief or officer of the Fire Department in charge at the scene of an emergency is authorized to place ropes, guards, barricades, or other obstructions across any street, alley, place, or private property in the vicinity of such operation so as to prevent accidents or interference with the lawful efforts of the Fire Department to manage and control the situation and to handle fire apparatus.

104.11.2 Obstructing Operations. No person shall obstruct the operations of the Fire Department in connection with extinguishment or control of any fire or actions relative to other emergencies, or disobey any lawful command of the Fire Chief or officer of the Fire

Department in charge of the emergency or any part thereof or of a police officer assisting the Fire Department.

104.11.3 Systems and Devices. No person shall render a system or device inoperative during an emergency unless by direction of the Fire Chief or Fire Department official in charge of the incident.

SECTION 105 PERMITS

105.1 General. Permits shall be in accordance with Section 105.1 through 105.7.4

105.1.1 Permits Required. Permits required by this code shall be obtained from the fire official. Permit fees shall be paid prior to issuance of the permit. Issued permits shall be kept on the premises designated therein at all times and shall be readily available for inspection by the fire official.

105.1.2 Types of Permits. There shall be two types of permits as follows:

1. *Operational Permit.* An operational permit allows the applicant to conduct an operation or a business for which a permit is required by Section 105.6 for either:

1.1 A prescribed period.

1.2 Until renewed or revoked.

2. *Building Permit.* A building permit allows the applicant to install or modify systems and equipment for which a permit is required by Section 105.7.

105.1.3 Permits for the Same Location. When more than one permit is required for the same location, the fire official is authorized to consolidate such permits into a single permit provided that such provision is listed in the permit.

105.2 By Whom Application Is Made. Application for a permit shall be made by the owner or lessee of the building or structure, or agent of either, or by the Missouri licensed design professional employed in connection with the proposed work. The full names, addresses, and telephone number of the owner, lessee, and applicant shall be stated in the application. Every application shall have a local contact person listed.

105.2.1 Application for Permit. To obtain a permit, the applicant shall first file an application on a form furnished by the Division of Building and Inspection for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which the application is made.

2. Indicate the use and occupancy for which the proposed work is intended.

3. Be accompanied by construction documents and other information.

4. State the valuation of the proposed work.

5. Be signed by the applicant or the applicant's authorized agent.

6. Give such other data and information as required by the fire official.

105.2.2 Action on Application. The fire official shall examine or cause to be examined applications for permits and amendments thereto. If the application or the construction documents do not conform to the requirements of all pertinent laws, the fire official shall reject such application in writing, stating the reasons therefor. If the fire official is satisfied that the proposed work conforms to the requirements of this code and all City of Saint Louis laws and ordinances applicable thereto, the fire official shall issue a permit. The fire official shall rely upon other City agencies to review for compliance with their ordinance requirements.

105.2.3 Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned six months after date of filing unless such application has been pursued in good faith or a permit has been issued, except that the building official is authorized to grant one or more extensions of time for additional periods not exceeding 90 days each if the building official deems that there is reasonable cause and if a written request is received from the applicant for the extension prior to the expiration date.

105.2.4 Time Limitation on Approval. An application for a permit for any proposed work shall have been deemed to have been abandoned three months after the approval date of the building official. A notice of abandonment shall be sent to the applicant of record two weeks prior to the abandonment date. Should the permit still not have been issued after these two weeks, the permit application shall be abandoned.

Applicants who have a record of abandoned permit applications shall be required on all future permits to pay the application fee and a the full permit fee upon application until such time as the abandoned permits have been reapplied for, approved, and permit fees and possible surcharges paid.

105.2.5 Inspection Authorized. Before a new operational permit is approved, the fire official is authorized to inspect the receptacles, vehicles, buildings, devices,

premises, storage spaces, or areas to be used to determine compliance with this code or any operational constraints required.

105.3 Conditions of Permit. A permit shall constitute permission to maintain, store, or handle materials; or to conduct processes which produce conditions hazardous to life or property; or to install equipment utilized in connection with such activities; or to install or modify any fire protection system or equipment or any other construction, equipment installation, or modification in accordance with the provisions of this code where a permit is required by Section 105.6 or 105.7. Such permission shall not be construed as authority to violate, cancel, or set aside any of the provisions of this code or other applicable regulations or laws of the City of Saint Louis.

105.3.1 Expiration. All permits shall be issued in the name of the property owner of record for a period of six months unless noted otherwise. Permits shall be permitted to be extended for additional six-month periods if work is progressing and a written request from the owner for the extension is received by the building official prior to the expiration of each permit. Any permit issued shall become invalid if the authorized work is not commenced within six months after issuance of the permit or if the authorized work is suspended or abandoned for a period of six months after the time of commencing the work, except that the building official shall be permitted to grant one or more extensions of time for additional periods not exceeding six months each if the building official deems that there is reasonable cause and if a written request is received from the owner for the extension prior to the expiration date. No permit shall be extended if after six months from issuance of said permit, no work has begun and the Board of Aldermen has passed an ordinance that would make all or part of the work thereon illegal or unlawful.

Permits shall also be abandoned upon written request from the property owner of record or, if circumstances require, the Missouri licensed design professional.

105.3.2 Partial Occupancy Permits. Upon the request of an owner or an owner's representative, a partial occupancy permit shall be permitted to be issued for a building, structure, or premises, provided that no conditions exist which endanger life, public safety, or welfare. Temporary or partial occupancy permits shall be permitted to be subject to conditions.

105.3.3 Placement of Permit. A true copy of the building permit shall be kept on the site of operations, open to inspection during the entire time of prosecution of the work and until the completion of the same.

105.3.4 Responsibility. It shall be the duty of every person who performs work for the installation or repair of building, structural, electrical, gas, mechanical, or plumbing systems for which this code is applicable to comply with this code.

105.3.5 Notice of Start. At least 24 hours' notice of start of work under a building permit shall be given to the building official.

105.3.6 Compliance with Permit. All work shall conform to the approved application and the approved construction documents for which the permit has been issued and any approved amendments to the approved application or the approved construction documents. Any addition to or alteration of approved construction documents shall be approved in advance by the code official as evidenced by the issuance of a new or amended permit.

105.4 Construction Documents. Construction documents shall be in accordance with this section.

105.4.1 Construction Documents. The application for the permit shall be accompanied by at least five complete sets of construction drawings with sufficient clarity and detailed dimensions to show the nature and character of the work to be performed, and one set of project specifications. The minimum size of any sheet shall be 8½" x 11" and the maximum size of any sheet shall be 36" x 48". When quality of materials is essential for conformity to this code, specific information shall be given to establish such quality and this code shall not be cited or the term "legal" or its equivalent be used as a substitute for specific information. Construction documents containing the words "not for construction," "preliminary," "review set," or their equivalent shall not be accepted for application. Construction documents marked with contractors "take-off" notations shall not be accepted for application.

All construction documents submitted with an application for a building permit shall be prepared by a Missouri licensed design professional as required by RSMo Ch. 327. All construction documents shall bear an original embossed or wet ink seal, original ink signature, and the date the documents were sealed by the Missouri licensed design professional for each disci-

pline on the cover sheet of each set of construction documents and on the first sheet of each discipline's drawings within each set of construction documents.

In addition, all other sheets of the construction documents, other than project specifications or calculations, shall bear the original embossed, wet ink, electronic or mechanically reproduced seal, signature, and date of the Missouri licensed design professional. Any addenda or modifications submitted for changes to the construction documents shall also bear the original embossed or wet ink seal, original ink signature, and date the documents were sealed.

All project specifications or other documents not considered to be construction drawings shall bear an original wet ink or embossed seal, original ink signature, and the date the documents were signed by the Missouri licensed design professional for each discipline on the title or index sheet.

Exception: The building or fire official is authorized to waive the submission of construction documents and other data not required to be prepared by a licensed design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

105.4.1.1 Examination of Documents. The building or fire official shall examine or cause to be examined the construction documents for code compliance.

105.4.2 Information on Construction Documents. Construction documents shall be drawn and dimensioned upon suitable material. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed and show in detail that it will conform to the provisions of this code and relevant laws, ordinances, rules, and regulations as determined by the building or fire official.

105.4.2.1 Fire Protection System Shop Drawings. Shop drawings for fire protection systems shall be submitted to indicate compliance with this code and the construction documents and shall be approved prior to the start of installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9.

105.4.3 Applicant Responsibility. It shall be the responsibility of the applicant to ensure that the construction documents include all of the fire protection requirements and the shop drawings are complete and in compliance with the applicable codes and standards.

105.4.4 Approved Documents. Construction documents approved by the fire official are approved with the intent that such construction documents comply in all respects with this code. Review and approval by the fire official shall not relieve the applicant of the responsibility of compliance with this code.

105.4.4.1 Phased Approval. The fire official is authorized to issue a permit for the construction of part of a structure, system, or operation before the construction documents for the whole structure, system, or operation have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this code. The holder of such permit for parts of a structure, system, or operation shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure, system, or operation will be granted.

105.4.5 Corrected Documents. Where field conditions necessitate any substantial change from the approved construction documents, the fire official shall have the authority to require the corrected construction documents to be submitted for approval.

105.4.6 Retention of Construction Documents. One set of the construction documents shall be retained by the fire official until final approval of the work covered therein. One set of approved construction documents shall be returned to the applicant and said set shall be kept on the site of the building or work at all times during which the work authorized thereby is in progress.

105.5 Revocation. The fire official is authorized to revoke a permit or approval issued under the provisions of this code when it is found by inspection or otherwise that there has been a false statements or misrepresentations as to material fact in the application, data, or construction documents on which the permit or approval was based, including, but not limited to, any one of the following:

1. The permit is issued for a location or establishment other than for which it was issued.

2. The permit is used for a condition or activity other than that listed in the permit.

3. Conditions and limitations set forth in the permit have been violated.

4. There have been any false statements or misrepresentations as to the material fact in the application for permit or plans submitted or a condition of the permit.

5. The permit is used by a different person or firm than the name for which it was issued.

6. The permittee failed, refused, or neglected to comply with orders or notices duly served in accordance with the provisions of this code within the time provided therein.

7. The permit was issued in error or in violation of an ordinance, regulation, or this code.

8. An owner is convicted by a court of competent jurisdiction twice within a twelve-month period of being in violation of the same code provision on the same building, structure, or premises.

105.5.1 Suspension or Revocation. The fire official is authorized to suspend or revoke a permit issued under the provisions of this code whenever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information or in violation of any ordinance, regulation, or provision of this code.

105.5.2 Revocation of Permits. The fire official shall be permitted to revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or on the construction documents on which the permit or approval was based. The fire official shall be permitted to revoke or suspend a permit upon discovery of substantial noncompliance with this code or any applicable City ordinance. Permits shall be revoked for non-payment of fees.

105.6 Required Operational Permits. The fire official is authorized to issue operational permits for the operations set forth in Sections 105.6.1 through 105.6.48. An operational permit fee is permitted to be charged as set forth in Table 113.1.

105.6.1 Aerosol Products. An operational permit is required to manufacture, store, or handle an aggregate quantity of Level 2 or Level 3 aerosol products in excess of 500 pounds net weight. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 51.

105.6.2 Amusement Buildings. An operational permit is required to operate a special amusement building. As set forth in the Building Code, these permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.3 Aviation Facilities. An operational permit is required to use a Group H or Group S occupancy for aircraft servicing or repair and aircraft fuel-servicing vehicles. Additional permits required by other sections of this code include, but are not limited to, hot work, hazardous materials, and flammable or combustible finishes. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 20.

105.6.4 Carnivals and Fairs. An operational permit is required to conduct a carnival or fair. As set forth in the Building Code, these permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.5 Cellulose Nitrate Film. An operational permit is required to store, handle, or use cellulose nitrate film in a Group A occupancy. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit. See Section 306.

105.6.6 Combustible dust-producing operations. An operational permit is required to operate a grain elevator, flour starch mill, feed mill, or a plant pulverizing aluminum, coal, cocoa, magnesium, spices or sugar, or other operations producing combustible dusts as defined in Chapter 2. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 22.

105.6.7 Combustible Fibers. An operational plant is required for the storage and handling of combustible fibers in quantities greater than 100 cubic feet. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 37.

105.6.8 Compressed Gases. An operational permit is required for the storage, use, or handling at normal temperatures and pressure (NTP) of compressed gases in excess of the amounts listed in Table 105.6.8. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 53.

Exception:

1. When used in accordance with Section 319.8 for cooking on Mobile Food Preparation Vehicles or trailers.

2. Vehicles equipped for and using compressed gas as a fuel for propelling the vehicle.

Table 105.6.8

PERMIT AMOUNTS FOR COMPRESSED GASSES

Type of Gas	Amount (cubic feet at NTP)
Corrosive	200
Flammable (except cryogenic fluids and liquified petroleum gases)	200
Highly toxic	Any Amount
Inert and simple asphyxiant (a)	6,000

Type of Gas	Amount (cubic feet at NTP)
Oxidizing (including oxygen)	504
Pyrophoric	Any Amount
Toxic	Any Amount
For SI: 1 cubic foot = 0.02832 m3.	
A. For carbon dioxide used in beverage dispensing applications, see Section 105.6.4.	

105.6.9 Covered and Open Mall Buildings. An operational permit is required for:

1. The placement of retail fixtures and displays, concession equipment, displays of highly combustible goods, and similar items in the mall.

2. The display of liquid- or gas-fired equipment in the mall.

3. The use of open-flame or flame-producing equipment in the mall.

As set forth in the Building Code, these permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.10 Cryogenic Fluids. An operational permit is required to produce, store, transport on site, use, handle, or dispense cryogenic fluids in excess of the amounts listed in Table 105.6.11. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 63.

Exception: Permits are not required for vehicles equipped with and using cryogenic fluids as a fuel for propelling the vehicle or for refrigerating the lading.

Table 105.6.10

PERMIT AMOUNTS FOR CRYOGENIC FLUIDS

Type of cryogenic fluid	Inside building (gallons)	Outside building (gallons)
Flammable	More than 1	60
Inert	60	500
Oxidizing (including oxygen)	10	50
Physical or health hazard not indicated above	Any Amount	Any Amount
For SI: 1 gallon = 3.785 L.		

105.6.11 Cutting and Welding. An operational permit is required to conduct cutting or welding operations. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 35. Permit fees shall be as established in Table 113.1.

105.6.12 Dry Cleaning. An operational permit is required to engage in the business of dry cleaning or to change to a more hazardous cleaning solvent used in existing dry cleaning equipment. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit. See Chapter 21.

105.6.13 Exhibits and Trade Shows. An operational permit is required to operate exhibits and trade shows. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.14 Explosives. An operational permit is required for the manufacture, storage, handling, sale, or use of any quantity of explosives, explosive material, fireworks, or pyrotechnic special effects within the scope of Chapter 56. These permits shall be enforced by the Saint Louis Fire Department. Permit fees shall be as established in Table 113.1.

105.6.15 Fire Hydrants and Valves. An operational permit is required to use or operate fire hydrants or valves intended for fire suppression purposes which are installed on water systems and provided with ready access from a fire apparatus access road that is open or generally used by the public. These permits shall be enforced by the Saint Louis Fire Department. See Section 507.

Exception: A permit is not required for authorized employees of the Saint Louis Water Department or the Fire Department to use or operate fire hydrants or valves.

105.6.16 Flammable and Combustible Liquids. An operational permit is required:

1. To use or operate a pipeline for the transportation within facilities of flammable or combustible liquids. This requirement shall not apply to off-site transportation in pipelines regulated by the Department of Transportation nor does it apply to piping systems.

2. To store, handle or use Class I liquids in excess of five gallons in a building or in excess of ten gallons outside of a building except that a permit is not required for the following:

2.1 The storage or use of Class I liquids in the fuel tank of a motor vehicle, aircraft, motorboat, mobile power plant, or mobile heating plant unless such storage, in the opinion of the code official, would cause an unsafe condition.

2.2 The storage or use of paints, oils, varnishes, or similar flammable mixtures when such liquids are stored for maintenance, painting, or similar purposes for a period of not more than thirty days.

3. To store, handle, or use Class II or Class IIIA liquids in excess of 25 gallons in a building or in excess of 60 gallons outside a building except for fuel oil used in connection with oil-burning equipment.

4. To store, handle or use Class IIIB liquids in tanks or portable tanks for fueling motor vehicles at motor fuel-dispensing facilities or where connected to fuel-burning equipment.

Exception: Fuel oil and used motor oil used for space heating or water heating.

5. To remove Class I or Class II liquids from an underground storage tank used for fueling motor vehicles by any means other than the approved, stationary on-site pimps normally used for dispensing purposes.

6. To operate tank vehicles, equipment, tanks, plants, terminals, wells, fuel-dispensing stations, refineries, distilleries, and similar facilities where flammable and combustible liquids are produced, processed, transported, stored, dispensed, or used.

7. To place temporarily out of service (for more than 90 days) an underground, protected above-ground, or above-ground flammable or combustible liquid tank.

8. To change the type of contents stored in a flammable or combustible liquid tank to a material which poses a greater hazard than that for which the tank was designed and constructed.

9. To manufacture, possess, blend, or refine flammable or combustible liquids.

10. To engage in the dispensing of liquid fuels into the fuel tanks of motor vehicles at commercial, industrial, governmental, or manufacturing establishments.

11. To utilize a site for the dispensing of liquid fuels from tank vehicles into the fuel tanks of motor vehicles, marine craft, and other special equipment at commercial, industrial, governmental, or manufacturing establishments.

These permits shall be enforced by the Saint Louis Fire Department. See Chapter 57. Permit fees shall be as established in Table 113.1.

105.6.17 Floor Finishing. An operational permit is required for floor finishing or surfacing operations exceeding 350 square feet using Class I or Class II liquids. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.18 Fruit and Crop Ripening. An operational permit is required to operate a fruit-or crop-ripening facility or conduct a fruit-ripening process using ethylene gas. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 25.

105.6.19 Fumigation and Thermal Insecticide Fogging. An operational permit is required to operate a business of fumigation or thermal insecticide fogging and to maintain a room, vault, or chamber in which a toxic or flammable fumigant is used. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 26.

105.6.20 Hazardous Materials. An operational permit is required to store, transport on site, dispense, use, or handle hazardous materials in excess of the amounts listed in Table 105.6.20. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 50.

Table 105.6.20

PERMIT AMOUNTS FOR HAZARDOUS MATERIALS

Type of Material	Amount
Combustible liquids	See Section 105.6.16
Corrosive materials	
Gases	See Section 105.6.8
Liquids	55 gallons
Solids	1000 pounds
Explosive materials	See Section 105.6.14
Flammable materials	
Gases	See Section 105.6.8
Liquids	See Section 105.6.16
Solids	100 pounds
Highly toxic materials	
Gases	See Section 105.6.8
Liquids	Any Amount
Solids	Ant Amount
Oxidizing materials	
Gases	See Section 105.6.8
Liquids	
Class 4	Any Amount
Class 3	1 gallon (a)
Class 2	10 gallons
Class 1	55 gallons
Solids	
Class 4	Any amount
Class 3	10 pounds (b)
Class 2	100 pounds
Class 1	500 pounds
Organic peroxides	
Liquids	
Class I	Any Amount
Class II	Any Amount
Class III	1 gallon
Class IV	2 gallons
Class V	No permit required
Solids	
Class I	Any Amount

Type of Material	Amount
Class II	Any Amount
Class III	10 pounds
Class IV	20 pounds
Class V	No permit required
Pyrophoric materials	
Gases	Any Amount
Liquids	Any Amount
Solids	Any Amount
Toxic materials	
Gases	See Section 105.6.8
Liquids	10 gallons
Solids	100 pounds
Unstable (reactive) materials	
Liquids	
Class 4	Any Amount
Class 3	Any Amount
Class 2	5 gallons
Class 1	10 gallons
Solids	
Class 4	Any Amount
Class 3	Any Amount
Class 2	50 pounds
Class 1	100 pounds
Water-reactive Materials	
Liquids	
Class 3	Any Amount
Class 2	5 gallons
Class 1	55 gallons
Solids	
Class 3	Any Amount
Class 2	50 pounds
Class 1	500 pounds

For SI: 1 gallon = 3.785 L, 1 pound = 0.454 kg.

a. 20 gallons when Table 5003.1.1(1) Note k applies and hazard identification signs in accordance with Section 5003.5 are provided for quantities of 20 gallons or less.

b. 200 pounds when Table 5003.1.1(1) Note k applies and hazard identification signs in accordance with Section 5003.5 are provided for quantities of 200 pounds or less.

105.6.21 HPM Facilities. An operational permit is required to store, handle or use hazardous production materials. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 50.

105.6.22 High-Piled Storage. An operational permit is required to use a building or portion thereof with more than 500 square feet, including aisles, of high-piled storage. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 32.

105.6.23 Hot Work Operations. An operational permit is required for hot work, including, but not limited to:

1. Public exhibitions and demonstrations where hot work is conducted.

2. Use of portable hot work equipment within a structure.

Exception: Work that is conducted under a construction permit.

3. Fixed-site hot work equipment such as welding booths.

4. Hot work conducted within a wildfire risk area.

5. Application of roof coverings with the use of an open-flame device.

6. When approved, the code official shall issue a permit to carry out a hot work program. This program allows approved personnel to regulate their facility's hot work operation. The approved personnel shall be trained in the fire safety aspects denoted in this chapter and shall be responsible for issuing permits requiring compliance with the requirements found in Chapter 35. These permits shall be issued only to their employees or hot work operations under their supervision.

These permits shall be enforced by the Saint Louis Fire Department.

105.6.24 Industrial Ovens. An operational permit is required for operation of industrial ovens regulated by Chapter 30. These permits shall be enforced by the Division of Building & Inspection Fire Safety Unit.

105.6.25 Lumber Yards and Woodworking Plants. An operational permit is required for the storage or processing of lumber exceeding 100,000 board feet. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 28.

105.6.26 Liquid- or Gas-Fueled Vehicles or Equipment in Assembly Buildings. An operational permit is required to display, operate, or demonstrate liquid- or gas-fueled vehicles or equipment in assembly buildings. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 57.

105.6.27 LP-gas. An operational permit is required for:

1. Storage and use of LP-gas.

Exception:

1. When used in accordance with Section 319.8 for cooking on mobile food preparation vehicles or trailers.

2. A permit is not required for individual containers with a 500-gallon (1893 L) water capacity or less serving occupancies in Group R-3.

2. Operation of cargo tankers that transport LP-gas.

These permits shall be enforced by the Saint Louis Fire Department. See Chapter 61. Permit fees shall be as established in Table 113.1.

105.6.28 Magnesium. An operational permit is required to melt, cast, heat treat, or grind more than ten pounds of magnesium. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 59.

105.6.29 Miscellaneous Combustible Storage. An operational permit is required to store in any building or upon any premises in excess of 2,500 cubic feet gross volume of combustible empty packing cases, boxes, barrels or similar containers, rubber tires, rubber, cork, or similar combustible materials. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit. See Section 315.

105.6.30 Mobile Food Vehicles. A permit is required for mobile food vehicles and trailers. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.31 Motor Fuel Dispensing Facilities. An operational permit is required for the operation of automotive, marine, and fleet motor fuel dispensing facilities. These permits shall be enforced by the Saint Louis Fire Department.

105.6.32 Open Burning. An operational permit is required for the kindling or maintaining of an open fire or a fire on any public street, alley, road, or other public or private ground. Instructions and stipulations of the permit shall be adhered to. These permits shall be enforced by the Saint Louis Fire Department. See Section 307.

Exception: Recreational fires.

105.6.33 Open Flames and Torches. An operational permit is required to remove paint with a torch or to use a torch or open-flame device in a wildfire risk area. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit. See Section 308.

105.6.34 Open Flames and Candles. An operational permit is required to use open flames or candles in connection with assembly areas, dining areas of restaurants, or drinking establishments. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit. See Section 308.

105.6.35 Organic Coatings. An operational permit is required for any organic-coating manufacturing operation producing more than 1 gallon (4 L) of an organic coating in one day. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 29. Permit fees shall be as established in Table 113.1.

105.6.36 Outdoor Assembly Event. An operational permit is required to conduct an outdoor assembly event where planned attendance exceeds 1,000 persons. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.37 Places of Assembly. An operational permit is required to operate a place of assembly. These permits shall be enforced as set forth in the Building Code by the Division of Building and Inspection Fire Safety Unit.

105.6.38 Plant Extraction Systems. An operational permit is required to use plant extraction systems. These permits shall be enforced by the Saint Louis Fire Department.

105.6.39 Private Fire Hydrants. An operational permit is required for the removal from service, use, or operation of private fire hydrants. These permits shall be enforced by the Division of Building and Inspection Plumbing Section.

Exception: A permit is not required for private industry with trained maintenance personnel, private fire brigade or Fire Department to maintain, test, and use private hydrants.

105.6.40 Pyrotechnical Special Effects Material. An operational permit is required for use and handling of pyrotechnic special effects material. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 56.

105.6.41 Pyroxylin Plastics. An operational permit is required for storage or handling of more than 25 pounds of cellulose nitrate (pyroxylin) plastics and for the assembly or manufacture of articles involving pyroylin plastics. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 65.

105.6.42 Refrigeration Equipment. An operational permit is required to operate a mechanical refrigeration unit or system regulated by Chapter 6. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.6.43 Repair Garages and Motor Fuel Dispensing Facilities. An operational permit is required for operation of repair garages and automotive, marine, and fleet motor fuel dispensing facilities. As set forth in the Building Code, these permits shall be enforced by the Saint Louis Fire Department. See Chapter 23.

105.6.44 Rooftop Heliports. An operational permit is required for the operation of a rooftop heliport.

As set forth in the Building Code, these permits shall be enforced by the Saint Louis Fire Department. See Chapter 20.

105.6.45 Spraying or Dipping. An operational permit is required to conduct a spraying or dipping operation utilizing flammable or combustible liquids or the application of combustible powders regulated by Chapter 24. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.6.46 Storage of Scrap Tires and Tire Byproducts. An operational permit is required to establish, conduct, or maintain storage of scrap tires and tire byproducts that exceeds 2,500 cubic feet of total volume of scrap tires and for indoor storage of tires and tire byproducts. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 25.

105.6.47 Temporary Membrane Structures, Tents, and Canopies. An operational permit is required to operate an air-supported temporary membrane structure or a tent per Chapter 31. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.48 Tire-Rebuilding Plants. An operational permit is required for the operation and maintenance of a tire-rebuilding plant. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 34.

105.6.49 Waste Handling. An operational permit is required for the operation of wrecking yards, junk yards, and waste material handling facilities. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

105.6.50 Wood Products. An operational permit is required to store chips, hogged material, lumber, or plywood in excess of 200 cubic feet. These permits shall be enforced by the Saint Louis Fire Department. See Chapter 28.

105.7 Required Building Permits. The fire official is authorized to issue building permits for work as set forth in Sections 105.7.1 through 105.7.14.

105.7.1 Automatic Fire-Extinguishing Systems. A building permit is required for installation of or modification to an automatic fire-extinguishing system. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.7.2 Battery Systems. A permit is required to install stationary storage battery systems having a liquid capacity more than 50 gallons. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

105.7.3 Capacitor Energy Storage Systems. A permit is required to install capacitor energy storage systems regulated by Section 1206.3. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

1*05.7.4 Compressed Gases.* When the compressed gases in use or storage exceed the amounts listed in Table 105.6.9, a permit is required to install, repair damage to, abandon, remove, place temporarily out of service, close, or substantially modify a compressed gas system. These permits shall be enforced by the Saint Louis Fire Department.

Exceptions:

1. Routine maintenance.
2. For emergency repair work performed on an emergency basis, application for permit shall be made within two working days of commencement of work.

105.7.5 Cryogenic Fluids. A permit is required for installation of or alteration to outdoor stationary cryogenic fluid storage systems where the system capacity exceeds the amounts listed in Table 105.6.10. Maintenance performed in accordance with this code is not considered an alteration and does not require a construction permit. These permits shall be enforced by the Saint Louis Fire Department.

105.7.6 Emergency Responder Radio Coverage System. A permit is required for installation of or modification to emergency responder radio coverage systems and related equipment. Maintenance performed in accordance with this code is not considered to be a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

105.7.7 Fire Alarm and Detection Systems and Related Equipment. A building permit is required for installation or modification to fire alarm and detection systems and related equipment. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

105.7.8 Fire Pumps and Related Equipment. A permit is required for installation of or modification to fire pumps and related fuel tanks, jockey pumps, control-

lers, and generators. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.7.9 Flammable and Combustible Liquids. A permit it required:

1. To install, repair, or modify a pipeline for the transportation of flammable or combustible liquids.

2. To install, construct, or alter tank vehicles, equipment, tanks, plants, terminals, wells, fuel dispensing stations, refineries, distilleries, and similar facilities where flammable and combustible liquids are produced, processed, transported, stored, dispensed, or used.

3. To install, alter, remove, abandon, or otherwise dispose of a flammable or combustible liquid tank.

These permits shall be enforced by the Saint Louis Fire Department.

105.7.10 Fuel Cell Power Systems. A permit is required to install stationary fuel cell power systems. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

105.7.11 Gas Detection Systems. A permit is required for the installation or modification to gas detection systems. Maintenance performed in accordance with this code is not considered a modification and does not require a permit.

105.7.12 Gates and Barricades Across Fire Apparatus Access Roads. A permit is required for the installation of or modification to a gate or barricade across a fire apparatus access road. These permits shall be enforced by the Saint Louis Fire Department.

105.7.13 Hazardous Materials. A permit is required to install, repair damage to, abandon, remove, place temporarily out of service, close, or substantially modify a storage facility or other area regulated by Chapter 50 when the hazardous materials in use or storage exceed the amounts listed in Table 105.6.20. These permits shall be enforced by the Saint Louis Fire Department.

Exceptions:

1. Routine maintenance.

2. For emergency repair work performed on an emergency basis, application for permit shall be made within two working days of commencement of work.

105.7.14 High-Piled Combustible Storage. A permit is required for the installation of or modification to a structure exceeding 500 square feet including aisles, for high-piled combustible storage. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Saint Louis Fire Department.

105.7.15 Industrial Ovens. A permit is required for installation of industrial ovens covered by Chapter 30.

Exceptions:

1. Routine maintenance.

2. For repair work performed on an emergency basis, application for permit shall be made within two working days of commencement of work.

These permits shall be enforced by the Division of Building & Inspection Fire Safety Unit.

105.7.16 LP-gas. A permit is required for installation of or modification to an LP-gas system. These permits shall be enforced by the Saint Louis Fire Department.

105.7.17 Motor Vehicle Repair Rooms and Booths. A permit is required to install or modify a motor vehicle repair room or booth. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Saint Louis Fire Department.

105.7.18 Plant Extraction Systems. A permit is required for installation of or modification to plant extraction systems. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Saint Louis Fire Department.

105.7.19 Private Fire Hydrants. A permit is required for the installation or modification of private fire hydrants. These permits shall be enforced by the Division of Building and Inspection Plumbing Inspection Section.

105.7.20 Smoke Control or Smoke Exhaust Systems. Permits are required for installation of or alteration to smoke control or smoke exhaust systems. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.7.21 Solar Photovoltaic Power Systems. A permit is required to install or modify solar photovoltaic power systems. Maintenance performed in accordance with this code is not considered a modification and

does not require a permit. These permits shall be enforced by the Division of Building and Inspection Electrical Inspection Section.

105.7.22 Special Event Structure. A construction permit is required to erect and take down a temporary special event structure. These permits shall be enforced by the Division of Building & Inspection Fire Safety Unit.

105.7.23 Spraying or Dipping. A permit is required to install or modify a spray room, dip tank, or booth. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.7.24 Standpipe System. A building permit is required for the installation, modification, or removal from service of a standpipe system. Maintenance performed in accordance with this code is not considered a modification and does not require a permit. These permits shall be enforced by the Division of Building and Inspection Mechanical Inspection Section.

105.7.25 Temporary Membrane Structures, Tents, and Canopies. A building permit is required to erect an air-supported temporary membrane structure or a tent per Chapter 31. These permits shall be enforced by the Division of Building and Inspection Fire Safety Unit.

SECTION 106 INSPECTIONS

106.1 Inspection Authority. Construction or work for which a permit is required shall be subject to inspection by the building or fire official and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the City of Saint Louis. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances shall not be valid.

106.2 Inspections. The fire official is authorized to conduct such inspections as are deemed necessary to determine the extent of compliance with the provisions of this code and to approve reports of inspection by approved agencies or individuals. All reports of inspections shall be prepared and submitted in writing for review and approval. Inspection reports must be certified by a responsible officer of such approved agency or by the responsible individual. The fire official is authorized to engage such expert opinion as deemed necessary to report upon unusual, detailed, or complex technical issues subject to the approval of the governing body.

106.2.1 Inspection Requests. It shall be the duty of the holder of the permit or their duly authorized agent to notify the fire official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this code.

106.3 Authority to Enter. The fire official shall have the authority to enter at any reasonable hour any building, structure, or premises in the City of Saint Louis for which a permit has been issued but has not received a certificate of occupancy in accordance with Section 104.3 to enforce the provisions of this code or any other code or ordinance of the City of Saint Louis. No person shall accompany a building official onto a premises in the performance of their duty unless otherwise invited onto said premises by the owner or the owner's representative.

For all other structures or premises, when the building official has reasonable cause to believe that a code violation exists, the building official is authorized to enter the building, structure, or premises at reasonable times to inspect subject to constitutional restrictions on unreasonable searches and seizures. If entry is refused or not obtained, the building official is authorized to pursue recourse as provided by law.

106.4 Concealed Work. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Whenever any installation subject to inspection prior to use is covered or concealed without having first been inspected, the fire official shall have the authority to require that such work be exposed for inspection. Neither the fire official nor the City of Saint Louis shall be liable for expense entailed in the removal or replacement of any material required to allow inspection.

SECTION 107 MAINTENANCE

107.1 Maintenance of Safeguards. Whenever or wherever any device, equipment, system, condition, arrangement, level of protection, or any other feature is required for compliance with the provisions of this code or otherwise installed, such device, equipment, system, condition, arrangement, level of protection, or any other feature shall thereafter be continuously maintained in accordance with this code and applicable referenced standards.

107.2 Testing and Operation. Equipment requiring periodic testing or operation to ensure maintenance shall be tested or operated as specified in this code.

107.2.1 Testing and Inspection Records. Required test and inspection records shall be available to the fire official at all times or such records as the fire official designates shall be filed with the fire official.

107.2.2 Reinspection and Testing. When any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as achieve compliance with this code. The work or installation shall then be resubmitted to the fire official for inspection and testing.

107.3 Supervision. Maintenance and testing shall be under the supervision of a responsible person who shall ensure that such maintenance and testing are conducted at specified intervals in accordance with this code.

107.4 Rendering Equipment Inoperable. Portable or fixed fire-extinguishing systems or devices and fire-warning systems shall not be rendered inoperative or inaccessible except as necessary during emergencies, maintenance, repairs, alterations, drills, or prescribed testing.

107.5 Owner/Occupant Responsibility. Correction and abatement of violations of this code shall be the responsibility of the owner. If an occupant creates or allows to be created hazardous conditions in violation of this code, the occupant shall be held responsible for the abatement of such hazardous conditions.

107.6 Overcrowding. Overcrowding or admittance of any person beyond the approved capacity of a building or portion thereof shall not be allowed. The fire official, upon finding any overcrowding conditions or obstructions in aisles, passageways, or other means of egress or upon finding any condition which constitutes a life safety hazard, shall be authorized to cause the event to be stopped until such condition or obstruction is corrected.

SECTION 108 MEANS OF APPEAL

108.1 General. Any person aggrieved by a decision of the fire official may appeal said decision to the Board of Building Appeals.

108.2 Appeals to Stay Proceedings; Exceptions. Appeals shall stay all proceedings in furtherance of the action appealed from, unless the building official or fire official, whichever shall be the case, certifies to the Board of Building Appeals after the notice of appeal has been filed that by reason of the facts stated in the certificate, a stay would, in their opinion, cause imminent peril to life or property. Proceedings shall not be stayed other than by restraining order.

SECTION 109 VIOLATIONS

109.1 Unlawful Acts. It shall be unlawful for a person, firm, or corporation to erect, construct, alter, repair, remove, demolish, or utilize a building, occupancy, premises, or system regulated by this code or cause same to be done in conflict with or in violation of any of the provisions of this code or any decision or order of the Board of Building Appeals.

109.2 Notice of Violation. Whenever the fire official finds a building, premises, vehicle, storage facility, or outdoor area that is in violation of this code, the fire official is authorized to prepare a written notice of violation describing the condition deemed unsafe and, when compliance is not immediate, specifying a time for reinspection.

109.2.1 Service. The fire official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or person responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition, use, or occupancy of a building, structure, or premises in violation of the provisions of this code, in violation of a detail statement or construction documents approved hereunder, or in violation of a permit or certificate issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the fire official.

109.2.2 Compliance with Orders and Notices. A notice of violation issued or served as provided by this code shall be complied with by the owner, operator, occupant, or other person responsible for the condition or violation to which the notice of violation pertains.

109.2.3 Prosecution of Violation. If the notice of violation is not complied with promptly, the fire official is authorized to request the legal counsel of the City of Saint Louis to institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of

the unlawful occupancy of the building, structure, or premises in violation of the provisions of this code or of the order or direction made pursuant thereto.

109.3 Violation Penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters, or repairs a building or structure in violation of the approved construction documents, directive of the fire official, or a permit or certificate issued under the provisions of this code shall be subject to penalties as prescribed in Section 25.06.040.

109.4 Abatement of Violation. The imposition of penalties as set forth in Section 25.06.040 shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction; to restrain, correct, or abate a violation; to prevent illegal occupancy of a building, structure, or premises; or to stop an illegal act, conduct business, or use of a building or structure on or about any premises.

SECTION 110 UNSAFE BUILDINGS

110.1 General. If during the inspection of a premises, a building or structure or any building system, in whole or in part, constitutes a clear and inimical threat to human life, safety, or health, the fire official shall issue such notice or orders to remove or remedy the conditions as shall be deemed necessary in accordance with this section and shall refer the building to the Division of Building and Inspection for any repairs, alterations, remodeling, removing, or demolition required.

110.1.1 Unsafe Conditions. Structures or existing equipment that are or hereafter become unsafe or deficient because of inadequate means of egress; which constitute a fire hazard; are otherwise dangerous to human life or the public welfare; which involve illegal or improper occupancy or inadequate maintenance shall be deemed an unsafe condition. A vacant structure which is not secured against unauthorized entry as required by Section 311 shall be deemed unsafe.

110.1.2 Structural Hazards. When an apparent structural hazard is caused by the faulty installation, operation, or malfunction of any of the items or devices governed by this code, the fire official shall immediately notify the building official in accordance with Section 110.1.

110.2 Evacuation. The fire official or the Fire Department official in charge of an incident shall be authorized to order the immediate evacuation of any occupied building deemed unsafe when such building has hazardous conditions that present imminent danger to building occupants. Persons so notified shall immediately leave the structure or premises and shall not enter or re-enter until authorized to do so by the fire official or the Fire Department official in charge of the incident.

110.3 Summary Abatement. Where conditions exist that are deemed hazardous to life and property, the code official or Fire Department official in charge of the incident is authorized to abate summarily such hazardous conditions that are in violation of this code.

110.4 Abatement. The owner, operator, or occupant of a building or premises deemed unsafe by the fire official shall abate or cause to be abated or corrected such unsafe conditions either by repair, rehabilitation, demolition, or other approved corrective action.

SECTION 111 STOP WORK ORDER

111.1 Order. Whenever the fire official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the fire official is authorized to issue a stop work order.

111.2 Issuance. The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.

111.3 Emergencies. When an emergency exists, the fire official shall not be required to give a written notice prior to stopping the work.

111.4 Unlawful Continuance. Any person who shall continue any work in or about the building, structure, or premises after having been served with a stop work order, except such work as they are directed to perform to remove a violation or unsafe condition, shall, upon conviction thereof, be subject to the penalties as set forth in Section 25.06.040. Each day that a violation continues shall constitute a separate and distinct offense.

SECTION 112 SERVICE UTILITIES

112.1 Authority to Disconnect Service Utilities. The fire official shall have the authority to authorize disconnection of utility service to the building, structure, or

system in order to safely execute emergency operations or to eliminate an immediate hazard. The fire official shall notify the serving utility and, whenever possible, the owner and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action if not notified prior to disconnection. The owner or occupant of the building, structure, or service system shall be notified in writing as soon as practical thereafter.

SECTION 113 FEES

113.1 General. No permit, certificate, or inspection report required by the provisions of this code shall be released or issued until the fees listed in this section have been paid to the City of Saint Louis as collected by the fire official or designated representative; nor shall an addendum to a permit be released until the additional fees have been paid. In collecting said fees, the fire official is authorized to accept personal checks as payment; however, non-payment by said checking account shall be considered as a violation of this code and is cause for suspension or revocation of permits, certificates, or reports issued or released for such personal check payment. If a permit is suspended or revoked for non-payment of a fee or for insufficient funds, an additional $25.00 shall be collected to cover administrative costs.

113.1.1 Payment of Fees. A permit shall not be issued until the designated fees listed in Table 113.1 have been paid. The payment of these fees shall not relieve the applicant or holder of any permit from the payment of other fees or from obtaining other required permits which may be prescribed by ordinance such as building permits, Board of Public Service permits, plumbing permits, fees for water and sewer connections, electrical permits, or fees for other inspections and privileges.

113.1.2 Application Fee. An application fee is an administrative charge made for processing permit applications and shall be the fee as listed in Table 113.1.

Table 113.1

PERMIT FEES AND REQUIREMENTS (a)

Section	Description	Permit Fee	Duration (b)
113.1.2	Application fee	$25.00	
105.6	Operational permit fee	$50.00	
2901.2	Organic coatings Use of more than one gallon per day	$50.00 (c)	
3501.2	Welding or cutting Individual site City wide	$40.00 $60.00	each operation yearly
5601.2	Fireworks (individual demonstration only.)		
	To store (not to exceed 48 hours.)	$50.00	
	To discharge	$50.00	
	To transport		
	One vehicle	$30.00	per event
	Other vehicles	$15.00	per event
5601.2	Explosives/blasting Storage, handling, and use of blasting agents.	$120.00	
5701.4	Flammable and combustible liquids - storage, handling, use, processing Storage Vaults	$50.00 (c)	
5701.4 & 5708.13 & 5709.4	Flammable and combustible liquids - tanks and equipment (per tank) To abandon, install or remove To repair any tank piping or pumps To clean	 $50.00 $40.00 $40.00	 as required as required as required
6101.2	Liquefied petroleum gases		
	Any quantity for exhibits, demonstrations, picnics, and carnivals (for duration of event or performance applied for.)	$50.00	per event
	Bulk installation	$50.00 (c)	per vessel
	Use on construction site	$100.00	per heating season

Section	Description	Permit Fee	Duration (b)
NOTES: a. Notice to fire official and approval required prior to any event or occupancy. b. All inspections are annual unless noted otherwise. c. Initial Inspection only.			

113.2 Final Inspection and Testing Fees. Fees for the testing of underground storage tanks and piping and fire detection and extinguishing equipment as required by this code are listed in Table 113.2.

Table 113.2

FEES FOR WITNESSING TESTS

Item	Fee for permit	Detail requirements See Section	Remarks
To witness tests to determine leaking tanks and piping in underground storage tanks.	$100.00/tank	5709.3	Fee is based on time and equipment utilized in isolating leak and hazard.
To witness test for fire fighting foam equipment	$50.00	907.12	Acceptance testing
Final inspection of sprinkler or standpipe installation	$200.00	907.12	Acceptance testing

113.3 Certificate of Fitness or Competency. All fees for certificates of fitness, registration or competency as required by Section 915.4, 916.4, 3301.3, 3310.6 or 3409.6.3 of this code shall be as specified by Table 113.3.

Table 113.3

FEES FOR CERTIFICATE OF FITNESS, REGISTRATION OR COMPETENCY

Item	Fee for certificate	Duration of certificate	Detail requirements See Section	Remarks
Certificate of Registration to sell, lease, or service portable fire extinguishers	$60.00	1 Year	918.4	See also Section 915.6
Certificate of Registration to install or service flammable liquid tanks	$60.00	1 Year	5710.6.3	Underground storage systems, underground tanks & underground piping & valves for gasoline or other flammable liquids
Certificate of competency to discharge fireworks	$50.00	1 Year	5608.1.1	
Certificate of registration (Fireworks)	$60.00	1 Year	5601.3	Firms engaged in the business of offering for sale supervised fireworks displays.

113.4 Fees for Inspections Required by Other City Agencies. Fees for inspections made by the code official which are required by other City Agencies or Departments shall be paid by the applicant in the amount shown in Table 113.4.

Table 113.4

MISCELLANEOUS INSPECTION FEES

Item	Fee for inspections
Hospitals, home for the aged, nursing homes (a)	$200.00
Nursery school and children's homes, day care centers and similar uses (a)	$200.00
Dance hall permits	
Initial Inspection (b)	$200.00
Annual Inspection (b)	$200.00

Item	Fee for inspections
Notes: a. Inspections shall be performed by the Division of Building and Inspection, Inspection Section. b. Inspections shall be performed by the Division of Building and Inspection, Fire Safety Unit.	

113.5 Work started Surcharge Fees Schedule. In case any work for which a fire permit is required by this code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 113.5. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 113.5

SCHEDULE FOR SURCHARGE BUILDING PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

113.6 Related Fees. The payment of fees for the construction, alteration, removal, or demolition for work done in connection with or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

113.7 Fees Non-Refundable. The fee for a permit based upon an estimated cost that is higher than later claimed by the applicant shall not be a basis for refund. When construction does not occur or only partially occurs, fees collected are not refundable.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Change Section 201.3 to read as follows:

201.3 Terms Defined in Other Codes. Where terms are not defined in this code and are defined in the Building Code, Fuel Gas Code, Mechanical Code, or Plumbing Code, such terms shall have the meanings ascribed to them as in those codes.

Modify Section 202 Definitions by the addition or changing of definitions to read as follows:

Fire official or *fire code official.* The Division of Building and Inspection Fire Safety Unit of the City of Saint Louis, or any duly authorized representative.

Licensed design professional. An individual who is licensed to practice their respective design profession as defined by RSMo Ch. 327.

Licensed design professional in responsible charge. A licensed design professional engaged by the owner to review and coordinate certain aspects of the project, as determined by the building official, for compatibility with the design of the building or structure, including submittal documents prepared by others, deferred submittal documents, and phased submittal documents.

Registered design professional - same as *Licensed design professional*.

Registered design professional in responsible charge - same as *Licensed design professional in responsible charge.*

CHAPTER 4 IS AMENDED AS FOLLOWS:

Add Section 401.9 to read as follows:

401.9 Emergency Fire Watch. While responding to an emergency call, the Saint Louis Fire Department shall have the authority to require a fire watch when necessary to ensure public safety.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Add Sections 607.5, 607.5.1, and 607.6 to read as follows:

607.5 Permit Required. A mechanical permit shall be obtained from the Division of Building and Inspection Mechanical Inspection Section for the installation or alteration of a commercial kitchen hood system.

607.5.1 Permit Required. A permit shall be obtained from the building official prior to the installation or alteration of any commercial kitchen exhaust system or hood suppression system. Permit fees shall be as established in the Mechanical Code.

607.6 System Discharge. When a commercial kitchen exhaust suppression system discharges, the commercial cooking appliances shall not be operated until the suppression system has been recharged and placed back in service. When the system is recharged, it shall be tested and inspected in accordance with the appropriate section of Chapter 6.

CHAPTER 7 IS AMENDED AS FOLLOWS:

Section 706.1 is repealed, and in lieu thereof a new Section 706.1 is enacted to read as follows:

706.1 General.

A. Fire Dampers or Smoke Dampers, as defined in Section 202, protecting ducts and air transfer openings shall be inspected and maintained in accordance with NFPA 80 and NFPA 105.

B. Fire Dampers or Smoke Dampers are subject to acceptance testing, inspection after the first year of installation, and periodic inspection every four years thereafter unless located in a hospital, which shall be subject to periodic testing every six years thereafter. Testing and inspections under this section shall only be performed by individuals with a current certification that is accredited by the American National Standards Institute (ANSI) under the ISO/IEC 17024 standard or its equivalent as the Fire Official reasonably determines, and current Chapter 25.03, Sec. 112.7.2 of the St. Louis City Code licensure.

C. An Inspector's test and inspection results under this section shall be delivered to the building owner within thirty (30) days of such test or inspection.

D. Any deficiency noted by the Inspector shall be cured by the owner within sixty (60) days.

E. An Inspector's test and inspection results under this section shall document at a minimum:

i. The location of each fire and smoke damper; and

ii. The name of the Inspector; and

iii. The date of the inspection; and

iv. Any deficiencies discovered; and

v. The repairs or replacements completed and with a place for the Inspector to indicate when and how the deficiencies were corrected.

F. Building Owners shall retain testing and inspection records and maintain all documentation for at least three (3) test cycles and, upon request, make the records available for review by the Building Division and Inspection Fire Safety Unit.

G. Any products or materials used to protect the openings for ducts and air transfer openings shall be securely attached to or bonded to the construction containing the duct or air transfer opening, without visible openings through or into the cavity of the construction. Any damaged products or materials protecting duct and air transfer openings shall be repaired, restored, or replaced.

CHAPTER 9 IS AMENDED AS FOLLOWS:

Section 901.6.3 is repealed, and in lieu thereof a new Section 901.6.3 is enacted to read as follows:

901.6.3 Permits.

A. Records of all system inspections, tests, and maintenance required by the referenced NFPA standard shall be maintained on the premises for a minimum of three (3) test cycles and shall be sent to the fire code official. Reports shall be allowed to be uploaded to www.stlcitypermits.com by the contractor.

B. In addition to other requirements, permits for construction issued by the City shall be withheld until sufficient proof of tests and inspections required by this Code are given to the Code Official.

Change Section 903.3.5 to read as follows:

903.3.5 Water Supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referenced in Section 903.3.1. The potable water supply shall be protected against backflow in accordance with the requirements of this section and the Plumbing Code.

Change Section 904.11.1.3 to read as follows:

904.11.1.3 Water Supply Protection. Connections to a potable water supply shall be protected against backflow in accordance with the Plumbing Code.

Change Section 907.6.6 to read as follows:

907.6.6 Monitoring. All fire alarms and detection systems shall be monitored by a listed central station as defined in NFPA-72. A certificate or placard shall be issued by a recognized listing organization that has been listed the prime contractor for all newly installed fire alarm systems in commercial occupancies in accordance with the 2016 Edition of NFPA-72. This regulation shall apply to all fire alarm systems that are newly installed in commercial occupancies for which permits are required by the City of Saint Louis Building Code on or after April 1, 2014. Any existing fire alarm system in a commercial occupancy wherein the fire alarm control panel and alarm system components are to be replaced shall be considered newly installed for the purpose of this section. Also, where there is reasonable cause due to noncompliance or faulty conditions, the building official shall be permitted to require that an existing fire alarm system meet the same requirements as a newly installed system. Central station service in full compliance with the 2016 Edition of NFPA-72, Chapter 26, shall be maintained at the protected property, so long as the requirement for the fire alarm system exists.

Exceptions: Supervisory service is not required for:

1. Single and multiple-station smoke alarms required by Section 907.2.10.

2. Smoke detectors in Group I-3 occupancies.

3. Automatic sprinkler systems in one- and two-family dwellings.

Change Section 907.8.5 to read as follows:

907.8.5 Inspection, Testing, and Maintenance. The building owner shall be responsible to maintain the fire and life safety systems in an operable condition at all times. Service personnel shall meet the qualification requirements of NFPA 72 for inspection, testing, and maintenance of such systems. A written record shall be maintained and shall be forwarded to the fire official immediately upon completion of the tests and inspections.

Add Sections 907.11 and 907.12 to read as follows:

907.11 Central Station Supervision. All companies engaged in the business of offering sprinkler and fire detection system supervisory service shall, upon completion of inspection and test of sprinkler systems and fire detection systems under their contracts, forward to the fire official a written report of the results of such test and serviceability of such sprinkler systems and fire detection systems. Their reports shall contain, but not be limited to, the following information:

1. Name of company under contract.

2. Address of company.

3. Date of last inspection.

4. Type of system.

5. General service condition of system.

6. In case of sprinkler systems, the number of supervised systems.

907.12 Fees. A fee shall be assessed by the fire official to witness the acceptance test for sprinkler, standpipe, fire fighting foam, and other special systems. Fees shall be paid in accordance with the fee schedule established in Table 113.2.

Section 909.18.8.2 is repealed, and in lieu thereof a new Section 909.18.8.2 is enacted to read as follows:

909.18.8.2 Approved agencies for smoke control testing shall have expertise in fire protection engineering, mechanical engineering, and certifications as air balancers, and inspections shall only be performed by individuals with a current certification that is accredited by the American National Standards Institute (ANSI) under the ISO/IEC 17024 standard, or its equivalent as the Fire Official determines, and current Chapter 25.03, Sec. 112.7.2 of the St. Louis City Code licensure.

Change Section 912.6 to read as follows:

912.6 Backflow Protection. The potable water supply to automatic sprinkler and standpipe systems shall be protected against backflow as required by the Plumbing Code.

Add Sections 918 thru 920 to read as follows:

SECTION 918 SALE, LEASING, AND SERVICING OF PORTABLE FIRE EXTINGUISHERS AND FIXED EXTINGUISHING SYSTEMS

918.1 General. The purpose of this section is to regulate the sale, leasing, and servicing of portable fire extinguishers and fixed extinguishing systems in the interest of safeguarding lives and property.

Exception: The activity of filling or charging a portable fire extinguisher prior to its initial sale by its manufacturer shall not be subject to this section. In addition, the licensing and registration provisions of this section shall not apply to any firm which services only its own fire extinguishers for its own use by maintaining its own fire extinguisher service facilities adequate for the purpose and utilizing its own personnel specially trained for such servicing.

918.2 Certificate of Registration for Firms Installing or Servicing Portable Fire Extinguishers or Fixed Extinguishing Systems. Each firm engaged in the business of servicing portable fire extinguishers or fixed extinguishing systems shall be required to have a Certificate of Registration issued by the fire official.

918.3 Approval of Portable Fire Extinguishers. No portable fire extinguisher shall be sold or leased in the City of Saint Louis unless it is approved, labeled, or listed by a testing laboratory which is approved by the fire official as qualified to test portable fire extinguishers.

918.4 Fees. All fees prescribed herein shall be charged at the rate prescribed in Table 113.3.

918.5 Penalties. Whoever shall do any of the acts as set forth in Sections 918.5.1 and 918.5.2 shall be held in violation of this code and shall, upon conviction thereof, be penalized as set forth in Section 25.06.040.

918.5.1 Misrepresentation. Having obtained or attempted to obtain a Certificate of Registration by fraudulent misrepresentation.

918.5.2 Violation of Regulations. Installed or repaired portable fire extinguishers or fixed extinguishing

systems contrary to the provisions of this section or the rules and regulations formulated and administered under the authority of this section.

918.6 Application for Certificate of Registration. Any firm that desires to engage in the business of installing or servicing portable fire extinguishers or fixed extinguishing systems shall make a written verified application to the fire official on forms provided for a Certificate of Registration. The application must be signed by the sole proprietor, or each partner, or by an officer of the corporation. All firms are required to be an authorized distributor, manufacturer certified, or employ International Code Council certified fire extinguisher technicians (FE-certified portable fire extinguisher technician, FK-pre-engineered fire extinguisher system technician, or FN-pre-engineered industrial fire extinguishing system technician) appropriate to work being performed. All supporting documentation and fees in accordance with Section 916.4 shall accompany the application.

918.6.1 Liability. At the time of application for a Certificate of Registration to service portable fire extinguishers or fixed extinguishing systems, the applicant must furnish a certificate of insurance in an amount as determined by the fire official.

918.6.2 Issue. If the fire official finds after reviewing the applicant's record that the granting or renewing of a Certificate of Registration would not be contrary to public safety and welfare, the fire official shall issue or renew such Certificate of Registration authorizing the firm to engage in the business of installing and servicing portable fire extinguishers and fixed extinguishing systems, provided the requisite fee has been paid. The fire official shall give each Certificate of Registration an identifying number.

918.6.3 Renewal of Certificate. Application for renewal of a Certificate of Registration shall be made annually in accordance with detailed procedures to be followed.

918.6.4 Revocation. After a hearing is conducted as hereinafter provided, the fire official may either refuse to issue or renew, or may suspend or revoke any Certificate of Registration for any of the following causes:

1. Violation - Any violation as listed in Section 918.5.

2. Misrepresentation - Having obtained or having attempted to obtain a Certificate of Registration by fraudulent misrepresentation.

3. Incompetence - Malpractice or incompetence in fire extinguisher sales or servicing.

4. False Advertising - Advertising fire extinguisher sale or servicing by means of knowingly false or deceptive statements.

5. Fee Not Paid - Failure to pay the original or annual renewal Certificate of Registration fee provided in these regulations.

6. Violation of Rules - Violation of any provision of this section as formulated and administered by the fire official or violation of any provision of these regulations.

918.6.5 Record. The fire official shall keep a list of the names, addresses, and Certificate of Registration numbers issued to each firm under these regulations.

918.6.6 Public Review. The record of all numbers of Certificates of Registration shall be available for review by any person desiring to review same.

918.7 Tagging of Serviced Portable Fire Extinguishers or Fixed Extinguishing Systems Required. When an employee under the supervision of a licensee services a portable fire extinguisher or fixed extinguishing system, a tag shall be affixed that at least states:

1. The month and year the service was performed.

2. The type of extinguisher or system serviced.

3. The name and license number of the licensee and the name and permit number of the apprentice, if any.

4. The name and Certificate of Registration number of the servicing firm.

918.7.1 Information. When a person exempt from the licensing provision of this section services a portable fire extinguisher, a tag shall be affixed that at least states:

1. The month and year when the service was performed.

2. The type of extinguisher serviced.

3. The name and address of the person performing the service and the name and address of their employer.

4. The address of the premises within which the portable fire extinguisher is customarily located.

918.8 Semi-Annual Test. The duct and kitchen exhaust hood extinguishing system shall be inspected semi-annually by a service technician that is certified through the corresponding manufacturer, the International Code Council, other nationally recognized certification organization, or other proof of competence, acceptable to the Authority Having Jurisdiction, for the

type of system being serviced. The technician shall possess a certification document on their person at all times while working within the City of Saint Louis boundaries. A corresponding written report shall be filed with the Division of Building and Inspection, Fire Safety Unit, upon completion.

SECTION 919 SPRINKLER, STANDPIPE AND FIRE PUMP MAINTENANCE

919.1 Scope. The purpose of this section is to establish a sprinkler and standpipe system maintenance control in the interest of safeguarding lives and property.

919.2 Application. The provisions of this section shall apply to existing sprinkler and standpipe systems installed in buildings prior to the enactment of this code and to all new sprinkler systems hereafter installed.

919.3 Sprinkler, Standpipe, and Fire Pump Maintenance and Inspection. All sprinkler, standpipe, and fire pump systems shall be inspected annually by a sprinkler fitter contractor licensed by the City of Saint Louis or by a Missouri licensed Professional Engineer with experience in sprinkler and standpipe systems and a report shall be filed with the Division of Building and Inspection Fire Safety Unit.

SECTION 920 FIRE PROTECTION EQUIPMENT

920.1 Scope. Fire extinguishing, fire detection, first-aid fire fighting systems, and devices required by the Building Code shall be maintained in accordance with the provisions of this section.

920.2 Existing Occupancies. Upon adoption of this code, the fire official shall make or cause to be made a survey of each existing business and industrial establishment; mercantile, educational, and institutional occupancy; place of assembly; hotel; multifamily dwelling; and trailer camp to determine such fire detecting devices or extinguishing appliances which are necessary in or near boiler rooms; kitchens or restaurants; clubs or like establishments; storage rooms involving considerable combustible material; rooms in which hazardous manufacturing processes are involved; repair garages; and other places of a generally hazardous nature to provide for the safety of the public according to existing conditions and in accordance with the requirements of the Building Code. Such devices or appliances may consist of automatic fire alarm systems; automatic sprinkler or water spray systems; standpipe and hose; fixed or portable fire extinguishers of a type suitable for the probable class of fire; manual or automatic covers, or carbon dioxide or other special fire extinguishing systems. In special hazardous processes or storage, appliances of more than one type or special systems may be required.

920.3 Maintenance of Equipment. Sprinkler systems, standpipe systems, fire pumps, fire alarm systems, and other fire protective or extinguishing systems or appliances which have been installed in compliance with any permit or order or because of any law or ordinance shall be maintained in operative condition at all times, and it shall be unlawful for any owner or occupant to reduce the effectiveness of the protection so required except that this shall not prohibit the owner or occupant from temporarily reducing or discontinuing the protection where necessary to make tests, repairs, alterations, or additions. The fire official shall be notified before such tests, repairs, alterations, or additions are started and upon its completion, and shall be advised of the extent of such work for additional requirements.

920.4 Suppression, Detection and Alarm Nuisance. It shall be the owner or occupant's responsibility to maintain suppression, detection, and alarm systems in such operating condition so as not to cause unnecessary alarms being transmitted to the Fire Department. Remedies to correct this situation shall be accomplished as expediently as possible. Those alarms deemed unnecessary shall be assessed a service charge of $100.00 for each response.

920.4.1 Notification of Sprinkler or Fire Alarm Shut-Off. Whenever a sprinkler or fire alarm system is to be shut off for repairs, it shall be the owner or occupant's responsibility to determine that the service person performing such repairs has notified the Fire Department of the pending shut-off prior to shutting the system off. When a sprinkler system has central station supervision, the company providing this service shall also be notified of the shut-off. Failure to notify the Fire Department or the Central Station supervising company of sprinkler or fire alarm shut-off resulting in an unnecessary alarm being transmitted to the Fire Department will subject the owner or occupant to a service charge of $100.00 for each alarm received.

920.4.2 Maintaining Sprinkler Systems in Abandoned or Unoccupied Buildings. It shall be the owner's responsibility to ensure that all automatic sprinkler systems in any building being temporarily vacated or

permanently abandoned be maintained in an operable condition at all times. And it shall be unlawful to shut down or in any manner reduce or impair the effectiveness of any sprinkler system unless prior approval is granted by the fire official or until at such time as the building is in the process of being demolished. Any conditions as set forth by the fire official governing the shut down of sprinkler systems shall be strictly adhered to. It shall be the owner's responsibility to notify the fire official 48 hours prior to vacating any building protected by an automatic sprinkler system. Any person, firm, agency, or corporation violating any provision of this section or failing to comply with any written order issued by the fire official pertinent to maintaining sprinkler protection in abandoned or temporarily vacated buildings shall, upon conviction thereof, be penalized as set forth in Section 25.06.040.

920.5 Periodic Flow Test. Fire pumps shall be subjected to a water flow test every two years on or about the anniversary date of their last previous test. The test shall be conducted by a sprinkler fitter contractor licensed by the City of Saint Louis or by a Missouri licensed Professional Engineer. A report shall be filed with the Division of Building and Inspection Fire Safety Unit.

CHAPTER 11 IS AMENDED AS FOLLOWS:

Delete Chapter 11 in its entirety.

CHAPTER 23 IS AMENDED AS FOLLOWS:

Change Section 2311.2.3 to read as follows:

2311.2.3 Drainage and Disposal of Liquids and Oil-Soaked Waste. Garage floor drains, where provided, shall drain to approved oil separators or traps discharging to a sewer in accordance with the Plumbing Code. Contents of oil separators, traps, and floor drainage systems shall be collected at sufficiently frequent intervals and removed from the premises to prevent oil from being carried into the sewers.

CHAPTER 29 IS AMENDED AS FOLLOWS:

Change Section 2901.2 to read as follows:

2901.2 Permit. Permits shall be required as set forth in Sections 105.6. The fee for organic coatings shall be as set forth in Table 113.1.

CHAPTER 31 IS AMENDED AS FOLLOWS:

Change Section 3103.2 to read as follows:

3103.2 Approval Required. Tents and membrane structures having an area in excess of 800 square feet or that cover or obstruct the means of egress of any building shall not be erected, operated, or maintained for any purpose without first obtaining a permit and approval from the fire code official.

Exceptions:

1. Tents used exclusively for recreational camping purposes in accordance with the Zoning Code when confined to a rear yard in residential zoning districts on a temporary basis.

2. Tents for private family events on the same lot as the residence are exempt from obtaining a permit but shall meet all other requirements.

3. Tents open on all sides that comply with all of the following:

3.1. Individual tents having a maximum size of 800 square feet.

3.2. The aggregate area of multiple tents placed side by side without a fire break clearance of 10 feet, not exceeding 800 square feet total.

3.3. A minimum clearance of 10 feet to all structures and other tents.

The use of propane tanks or equipment in the tent requires a separate permit and inspection by the fire code official. Means of egress for all tents shall comply with the Building Code. Tents shall be supported to withstand a live load of 20 pounds per square foot and wind speed of 115 mph, Exposure B. Setbacks required by the Zoning code and fire separation distances required by the Building Code shall be maintained but shall not be less than 10 feet.

CHAPTER 35 IS AMENDED AS FOLLOWS:

Change Section 3501.2 to read as follows:

3501.2 Permit. Permits shall be required as set forth in Section 105.6. The fee for welding and other hot work shall be as set forth in Table 113.1.

CHAPTER 50 IS AMENDED AS FOLLOWS:

Change Section 5004.2.2.6 to read as follows:

5004.2.2.6 Drainage System Design. Drainage systems shall be in accordance with the Plumbing Code and all of the following:

1. The slope of floors to drains in indoor locations or similar areas in outdoor locations shall not be less than 1 percent.

2. Drains from indoor storage areas shall be sized to carry the volume of the fire protection water as determined by the design density discharged from the automatic fire-extinguishing system over the minimum required system design area or area of the room or area of the room in which the storage is locate, whichever is smaller.

3. Drains from outdoor storage areas shall be sized to carry the volume of the fire flow and the volume of a 24-hour rainfall as determined by a 25-year storm.

4. Materials of construction for drainage systems shall be compatible with the materials stored.

5. Incompatible materials used in open systems shall be separated from each other in the drainage system.

6. Drains shall terminate in an approved location away from buildings, valves, means of egress, fire access roadways, adjoining property, and storm drains.

CHAPTER 56 IS AMENDED AS FOLLOWS:

Change Section 5601.2 to read as follows:

5601.2 Permit. Permits shall be required as set forth in Section 105.6 and regulated in accordance with this section. The fee for explosive and fireworks shall be as set forth in Table 113.1.

Change Section 5601.2.1 to read as follows:

5601.2.1 Limits. The limits in which the storage of explosives, ammunition, and blasting agents is prohibited are hereby established as the entire City of Saint Louis.

Exception: Storage of smokeless propellant, black powder, and small arms primers for personal use and not for resale in accordance with Section 5606.2.

Add Section 5608.1.1 to read as follows:

5608.1.1 Certification of Registration. Each firm engaged in the business of offering for sale supervised fireworks displays for private or public amusement shall be required to have a Certificate of Registration issued by the fire official. The fee shall be as set forth in Table 113.3.

Add Section 5610 to read as follows:

SECTION 5610 CERTIFICATE OF COMPETENCY

5610.1 General. Each individual who engages in the activity of discharging fireworks for public or private amusement shall be required to have a Certificate of Competency issued by the fire official.

5610.2 Qualifications. An individual applying for a Certificate of Competency must be 21 years of age; capable of reading, writing, speaking, and understanding the English language; and possessing at least two years' experience in the supervision of discharging fireworks displays. Proof of the experience will be required at the time of application.

5610.3 Examination. The applicant for a Certificate of Competency must satisfactorily pass a written or oral examination administered by the fire official or designated representative.

5610.4 Non-transferable. The Certificate of Competency shall be issued to the name of the applicant and is non-transferable.

5610.5 Insurance. The permittee shall furnish evidence of public liability and property damage insurance in amounts deemed adequate by the fire official.

5610.6 Fees. The fees for the Certificate of Competency shall be paid at the time of application in accordance with the fee schedule as set forth in Table 113.3.

CHAPTER 57 IS AMENDED AS FOLLOWS:

Change Section 5701.4 to read as follows:

5701.4 Permit. Permits shall be required as set forth in Section 105.6. The fee for flammable and combustible liquids shall be as set forth in Table 113.1.

Add Sections 5708 thru 5710 to read as follows:

SECTION 5708 FLAMMABLE LIQUID STORAGE TANK INSTALLATION

5708.1 Scope. The installation, abandonment, repair, or removal of any underground or aboveground tank used for the storage of flammable liquids shall comply with the provisions of this code.

5708.2 Permit Required. A permit shall be obtained from the fire official to install, abandon, or remove any above or below ground tank used for the storage of flammable liquids without regard to class of liquids.

*5708.3 Compliance with Building Code. T*he layout and field erection of flammable liquid tanks shall comply with the applicable requirements of the Building Code.

5708.4 Installation. The installation of stationary or temporary tanks for the storage of flammable liquids on any site or location shall be installed within the requirements of the applicable standards of NFPA 30.

5708.5 Fire Protection and Control. The required fire protection shall be as specified in the Building Code.

5708.6 Gasoline Storage. All gasoline storage tanks shall be installed below ground and be vented as required by the Building Code. Gasoline may be stored above ground in approved safety containers of not more than 500 gallons each subject to the approval of the fire official.

5708.7 Final Inspection. All flammable liquid storage tanks shall be subject to a final inspection by the fire official or representative before filling tanks; in case of underground tanks, the final inspection shall take place before tanks are covered over.

5708.7.1 Responsibility. It shall be the responsibility of the installer to notify the fire official 48 hours before final inspection is requested.

5708.8 Abandonment or Removal of Tanks. The fire official shall be notified 48 hours prior to the abandonment, cleaning, or removal of a flammable liquid tank.

5708.8.1 Requirements. The abandonment or removal of a flammable liquid tank shall comply with the applicable standards of NFPA 30.

5708.9 Leaking Tanks. The fire official shall be notified immediately upon discovery of any leakage of product from a flammable liquid tank, connected piping, or pumps.

5708.10 Test of Tanks or Piping. The owner or occupant shall, when required by the fire official, cause the testing of tanks, piping, pumps, and related equipment as so designated. Tests shall be performed according to procedures established by the fire official.

5708.10.1 Witnessing Test. Whenever the fire official requires any tank, piping, pump, or related equipment to be tested, the test shall be witnessed by the fire official or designated representative. The fire official shall be notified 48 hours before each test is to begin.

5708.11 Inventory Control Records to Be Kept. Accurate inventory control records for the purpose of detecting leakage shall be maintained by the person in control of the premises of each underground storage facility. The person in control of such premises shall make all inventory control records available for inspection and checking by the fire official at all reasonable times and shall promptly report to the fire official any abnormal loss of content.

5708.12 Testing for Leaks. Notwithstanding any of the requirements of this chapter for testing piping systems and underground storage tanks, the fire official may require testing of any such system when there are grounds to believe that a system may be leaking, including, without limitation, failure to maintain inventory control records, when inventory control records indicate a shortage of product, or visual detection of leakage. The fire official may, at any time when such leakage shall be apparent, close the entire facility and the facility shall remain closed until such time as the fire official has been furnished sufficient proof that the leakage which has caused the closing of the facility has been repaired. The fire official may at any time require the construction of intercepting holes or trenches to prevent the continuing migration of the contaminating liquid.

5708.13 Permits. A permit shall be obtained from the fire official to repair any tank, container, or piping and pumps used for the storage and dispensing of flammable liquids. The fee shall be as set forth in Table 113.1.

5708.14 Removal of Covering Devices for Inspection. At the time of periodic tests of piping systems and at any other reasonable time when requested to do so by the fire official, dispenser panels, access covers, and any other covering devices shall be removed to permit access for inspection. Any deficiencies which are causing the loss of product shall be immediately corrected.

5708.14.1 Observation Well. An observation well shall be installed for each new tank location as determined by the fire official.

5708.14.2 Secondary Containment. Secondary containment shall be required in new tank installations as determined by the fire official.

SECTION 5709 REPAIR OF LEAKING TANKS OR CONTAINERS

5709.1 Repairs. Before any tank, equipment, or containers used for the storage or conveying of flammable liquids is repaired, the fire official shall be notified prior to commencement of work.

5709.1.1 Requirements. The repair of all equipment outlined in Section 5709.1 shall be done in strict compliance of requirements set forth by the fire official and NFPA 329 and NFPA 30.

5709.2 Requirements for Installers of Tanks and Equipment. Only those companies and individuals duly certified by the fire official having met the requirements set forth in Section 3409 for such certification shall be engaged for the purpose of installation or repairing flammable liquid tanks and related equipment.

5709.3 Fees. A fee shall be assessed by the fire official for witnessing the testing of tanks and equipment. Fees shall be paid according to the fee schedule established in Table 113.2.

5709.4 Repair Permit. A fee shall be assessed by the fire official for the repair, installation, or abandonment of tanks and the repair of any tank, piping, or pump as listed in Table 113.1

5709.5 Cleaning Tanks. Before any flammable liquid tank is cleaned, a permit shall be obtained from the fire official and a fee paid as listed in Table 113.1.

SECTION 5710 CERTIFICATION OF FLAMMABLE LIQUID TANK INSTALLATIONS

5710.1 Scope. The purpose of this section is to regulate the installation, repair, and testing of tanks and equipment used for the storage of flammable liquids in the interest of safeguarding lives and property.

5710.2 Registration of Persons Installing, Repairing, or Testing Flammable Liquid Storage Tanks. Each firm engaged in the business of installing, repairing or testing flammable liquid storage tanks shall be required to have a Certificate of Registration issued by the fire official.

5710.3 Prohibition Against Installing, Repairing, or Testing Flammable Liquid Storage Tanks by Personnel From Uncertified Company. The only person under this section allowed to install, repair, or test flammable liquid tanks is a person that holds a Certificate of Registration or an employee, agent, or servant of a firm that holds a Certificate of Registration.

5710.4 Applications and Hearing on Licenses, Permits, and Certificates. Applications for Certificates hereunder shall be made pursuant to regulations adopted by the fire official as those regulations may from time to time be amended.

5710.5 Penalties. Whoever shall intentionally commit any acts as set forth in Sections 5709.5.1 and 5709.5.2 shall be held in violation of this code and shall, upon conviction thereof, be penalized as set forth in Section 25.06.040.

5710.5.1 Operating Without Certificate. No person shall engage in the business of installing, repairing, or testing flammable liquid storage tanks without a current Certificate of Registration.

5710.5.2 Misrepresentation. No person shall obtain or attempt to obtain a Certificate of Registration by fraudulent misrepresentation.

5710.6 Application for Certificate of Registration. Any firm that desires to engage in the business of installing, repairing, or testing flammable liquid storage tanks shall make a written verified application to the code official on forms provided for a Certificate of Registration for each separate location of such firm where service is performed. The application must be signed by the sole proprietor, each partner, or an officer of the corporation.

5710.6.1 Review. If the fire official finds after reviewing the applicant's record that the granting or renewing of a Certificate of Registration would not be contrary to the public safety and welfare, the fire official shall issue or renew such Certificate of Registration authorizing the applicant to engage in the business of installing, repairing, or testing flammable liquid storage tanks provided the requisite fees have been paid. The fire official shall give each Certificate of Registration an identifying number.

5710.6.2 Renewal of Certificate. An application for renewal of a Certificate of Registration shall be made annually in accordance with detailed procedures to be followed.

5710.6.3 Fees. The original and annual renewal fee for Certificates of Registration issued pursuant to these regulations shall be paid according to the fee schedule established in Table 113.3.

5710.7 Revocation. The fire official shall conduct a hearing pursuant to the revocation of any Certificate of Registration. The fire official may then either refuse to renew, suspend, or revoke the Certificate of Registration for any of the following causes:

1. Violation - Any violation as listed in Section 3409.5.
2. Misrepresentation - Having obtained or having attempted to obtain a Certificate of Registration by fraudulent misrepresentation.
3. Malpractice - Malpractice or incompetence.
4. Failure to Pay Fee - Failure to pay the original or annual renewal Certificate of Registration fee provided in these regulations.
5. Violation of any provision of the rules and regulations as formulated and administered by the fire official or violation of any provision of this section.

CHAPTER 61 IS AMENDED AS FOLLOWS:

Change Section 6101.2 to read as follows:

6101.2 Permit. Permits shall be required as set forth in Sections 105.6 and 105.7. The fee for liquid petroleum gas shall be as set forth in Table 113.1. Distributors shall not fill an LP-gas container for which a permit is required until a permit for installation has been issued for that location by the fire code official.

Change Section 6103.2.1.7 to read as follows:

6103.2.1.7 Use for Food Preparation. Where approved, listed LP-gas commercial food service appli-

ances are allowed to be used for food-preparation within restaurants and in attended commercial food-catering operations in accordance with the Fuel Gas Code, Mechanical Code, and NFPA58. LP-gas tanks shall be allowed to be used on mobile food trucks not exceeding 100 lbs per tank and limited to two tanks per vehicle.

CHAPTER 80 IS AMENDED AS FOLLOWS:

Modify Chapter 80 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

201.3, 903.3.5, 904.11.1.3, 912.6, 2311.2.3, 5004.2.2.6

APPENDIX N IS AMENDED AS FOLLOWS:

Delete Sections N105.4, N105.6 and N106.

(Ord. No. 71844, § 1, 4-15-2024; Ord. No. 70796, § 3, 7-6-2018.)

25.06.040. Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, and shall, upon conviction thereof, be punished by a fine of not more than $500.00, or by imprisonment not exceeding 90 days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense. (Ord. No. 70796, § 4, 7-6-2018.)

Chapter 25.07

FUEL GAS CODE

Editor's Note:

Ord. No. 70801, adopted August 6, 2018, adopting the 2018 International Fuel Gas Code with amendments; repealed and replaced Ordinance No. 68638. Ord. No. 68638, §§ 1—3 and 6, adopted April 21, 2010, repealed ch. 25.07 and enacted a new chapter. The former ch. 25.07, §§ 25.07.010—25.07.560, pertained to similar subject matter and derived from Ord. No. 65022 §§ 1, 2(part) and 5, 2000.

Sections:

25.07.010 Adopted.

25.07.020 Amendments.

25.07.030 Penalty for violation.

25.07.010 Adopted.

The 2018 International Fuel Gas Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Fuel Gas Code, is hereby adopted as the Fuel Gas Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.943, for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Fuel Gas Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.07.020. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 70801, § 2, 8-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.07.020 Amendments.

The 2018 International Fuel Gas Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Change Section 101.1 to read as follows:

101.1 Title. These regulations shall be known as the Fuel Gas Code of the City of Saint Louis, hereafter referred to as "this code."

Delete Sections 103 thru 110 in their entirety.

Add new Section 103 to read as follows:

SECTION 103 ADMINISTERING OF THIS CODE

103.1 General. Authority, permitting, fees, penalties, inspections, duties, and means of appeal shall be as set forth in the Mechanical Code.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Change Section 201.3 to read as follows:

201.3 Terms Defined in Other Codes. Where terms are not defined in this code and are defined in the Building Code, Fire Code, Mechanical Code, Plumbing Code and NFPA, such terms shall have meanings ascribed to them as in those codes.

Add Section 201.5 to read as follows:

201.5 Referenced Other Codes and Standards. Any codes or standards referenced in this code shall be taken to mean the applicable City of Saint Louis code.

Change Section 202 by the addition or modification of the following definitions:

Diversity factor. Ratio of the maximum probable demand to the maximum possible demand.

Heating value, total. The number of Btu's produced by the combustion, at constant pressure, of 1 cubic foot (0.0283 m3) of gas when the products of combustion are cooled to the initial temperature of the gas and air, when the water vapor formed during combustion is condensed, and when all necessary corrections have been applied.

Purge. To clear of air, water, or other foreign substances.

Workmanlike. Executed in a skilled manner; e.g., generally plumb, level, square, in line, undamaged, and without marring adjacent work.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Change Section 301.6 to read as follows:

301.6 Plumbing Connections. Potable water supply and building drainage system connections to appliances regulated by this code shall be in accordance with the Plumbing Code.

Add Section 302.8 to read as follows:

302.8 Stud Guards. When the edge of bored holes is less than one inch (25mm) from the edge of a stud or joist and when notched studs or joists are covered, stud guards shall be installed to protect service lines from fastener damage.

Change Section 307.3 to read as follows:

307.3 Drain Pipe Materials and Sizes. Components of the condensate disposal system shall be cast iron, galvanized steel, copper, cross-linked polyethylene, polyethylene, ABS, CPVC PVC or polypropylene pipe or tubing. Components shall be selected for the pressure and temperature rating of the installation. Joints and connections shall be made in accordance with the applicable provisions of the Plumbing Code relative to the material type. Condensate waste and drain line size shall not be less than ¾-inch internal diameter and shall not decrease in size from the drain pan connection to the place of condensate disposal. Where the drain pipes from more than one unit are manifolded together for condensate drainage, the pipe or tubing shall be sized in accordance with an approved method.

CHAPTER 4 IS AMENDED AS FOLLOWS:

Add Section 403.4.2.1 to read as follows:

403.4.2.1 Galvanized Steel Pipe and Fittings. Galvanized steel pipe and galvanized steel fittings (steel pipe and fittings coated in zinc) shall not be used in any fuel-gas piping systems, including, but not limited to, natural gas, propane, fuel oil, gasoline, or other types of gaseous or liquid fuel.

Add Section 404.1.1 to read as follows:

404.1.1 Valves and Regulators. Manual valves, automatic valves, and regulators shall not be installed above drop ceilings or in concealed locations.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Change Sections 624.1.1 and 624.2 to read as follows:

624.1.1 Installation Requirements. The requirements for water heaters relative to sizing, relief valves, drain pans and scald protection shall be in accordance with the Plumbing Code.

624.2 Water Heaters Utilized for Space Heating. Water heaters utilized both to supply potable hot water and provide hot water for space-heating applications shall be listed and labeled for such applications by the manufacturer and shall be installed in accordance with the manufacturer's instructions and the Plumbing Code.

CHAPTER 8 IS AMENDED AS FOLLOWS:

Change Chapter 8 by the addition of the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

201.3, 301.6, 307.3, 624.1.1, 624.2 (Ord. No. 70801, § 3, 8-6-2018.)

25.07.030 Penalty for violation.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, and shall, upon conviction thereof, be punished by a fine of not more than $500.00, or by imprisonment not exceeding 90 days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate

and distinct offense. (Ord. No. 70801, § 4, 8-6-2018.)

Chapter 25.08

INFORMATION TO BE GIVEN TO BUILDING COMMISSIONER

Sections:

25.08.010 **Names of contractors and subcontractors to be furnished.**

25.08.020 **Noncompliance—Suspension of construction.**

25.08.030 **Stop work order to be in writing—Information contained—Enforcement.**

25.08.040 **Inspection and copy of records authorized.**

25.08.010 Names of contractors and subcontractors to be furnished.

Prior to the start of construction as authorized by a building permit, the permittee or person to whom the building permit has been issued shall furnish to the Building Commissioner, the License Collector and the Collector of Revenue of the City a complete and accurate list of the names and addresses of all contractors and subcontractors who have been engaged or hired to perform any construction work at the site designated in the building permit, together with the estimated contract value for each contractor or subcontractor. If any additional contractors or subcontractors are engaged or hired after the start of construction, the names and addresses of all such additional contractors and subcontractors and the estimated value of their contracts shall be furnished to the above-mentioned City officials within seven (7) days after such contractors or subcontractors are hired or engaged. All such contractors and subcontractors shall have a valid license issued by the License Collector of the City authorizing them to do business within the City. (1994 C., § 25.08.010; Ord. No. 55386, § 1, 1969.)

25.08.020 Noncompliance—Suspension of construction.

Whenever the person to whom a building permit is issued has not complied with the provisions of Section 25.08.010, or has engaged any contractor or subcontractor who does not have a valid license to do business within the City, the Building Commissioner, the License Collector or the Collector of Revenue shall have authority to suspend any or all construction work at the designated site; provided, however, that the Building Commissioner shall first determine that the suspension authorized herein will not endanger structural or fire safety at the designated site or the adjoining premises. (1994 C., § 25.08.020; Ord. No. 55386, § 2, 1969.)

25.08.030 Stop work order to be in writing—Information contained—Enforcement.

The suspension or stop work order authorized herein shall be in writing, shall state the effective date and time of such suspension, but in no event shall the effective date be less than three (3) days, excluding Sundays and holidays, after the issuance of the order. The suspension order shall further state the general reasons for the suspension and the conditions under which the work may be resumed. The suspension order shall be delivered or mailed to the permittee indicated on the building permit at his address thereon, within 24 hours of the date such order is issued, and also may be posted in a conspicuous place at the building site. The License Collector shall determine the amount of a bond, not less than the amount of the contractor's license fees due, which shall be prescribed in the suspension or stop work order. The bond as prescribed herein shall be payable to the City with good and sufficient surety as determined by the Comptroller, and if such a bond is filed with the Comptroller, the effective date of the suspension order shall be stayed. Such bond shall remain in effect pending the final decision in any subsequent appeal. The suspension or stop work order may be appealed to the Board of Tax Appeals under the procedures prescribed by law, and the Board shall determine the validity of the suspension or stop work order, the amount of the bond and all facts necessary in determining the amount of contractor's license fees due the City. All City officials and the Metropolitan St. Louis Police Department shall cooperate in the enforcement of these provisions and any suspension or stop work order. (1994 C., § 25.08.030; Ord. No. 55623, § 2, 1970; Ord. No. 55386, § 3, 1969.)

25.08.040 Inspection and copy of records authorized.

The Building Commissioner, the License Collector and the Collector of Revenue of the City and their designated representatives shall have authority to inspect and copy the construction records and contracts of all contractors and subcontractors performing work under a building permit and shall have authority to enter upon the construction site mentioned in the build-

ing permit for purposes of ascertaining the names and addresses of the contractors and subcontractors who are engaged to perform construction work at such site, and for the purpose of determining whether such contractors or subcontractors have a valid license authorizing them to do business within the City. (1994 C., § 25.08.040; Ord. No. 55386, § 4, 1969.)

Chapter 25.09

PROTECTIVE SYSTEMS

Sections:

25.09.010	**Approval of Board of Public Service required.**
25.09.020	**Structural and safety assessment report required.**
25.09.030	**Structural and safety assessment report—Waived when.**
25.09.040	**Permit issuance.**

25.09.010 Approval of Board of Public Service required.

It shall be unlawful for any person to provide a security or protection system, including fencing, around any structure, or part of a structure, on public property without the approval of the Board of Public Service. (1994 C., § 25.09.010; Ord. No. 64047, § 1, 1997.)

25.09.020 Structural and safety assessment report required.

Prior to the issuance by the Board of the approval of a protective system, the owner of the property must submit to the Board of Public Service a sealed structural and safety assessment report prepared by a registered engineer licensed by the State of Missouri showing what alternative protection systems can be utilized. The plans shall include the cost and feasibility of a "catch-containment" system, scaffolding system and fencing. (1994 C., § 25.09.020; Ord. No. 64047, § 2, 1997.)

25.09.030 Structural and safety assessment report—Waived when.

This report shall not apply in the cases of emergencies as determined by the Building Commissioner or if the structure is less than three stories. The Board may also waive the report if the request is for a security system to prevent illegal entry into the structure. (1994 C., § 25.09.030; Ord. No. 64047, § 4, 1997.)

25.09.040 Permit issuance.

The Board, upon the review of the assessment report, may issue a permit with conditions that will adequately protect the general public. (1994 C., § 25.09.040; Ord. No. 64047, § 3, 1997.)

Chapter 25.10

MECHANICAL CODE

Sections:

25.10.010 Mechanical Code—Defined.
25.10.020 Scope of Code.
25.10.030 Board of Examiners for Mechanical Contractors.
25.10.040 Review Committee.
25.10.050 Secretary of the Board—Duties.
25.10.060 Term of office—Compensation.
25.10.070 Powers and duties of the Board of Examiners.
25.10.080 Qualifications for mechanical contractors.
25.10.090 Mechanical certification fees.
25.10.100 Certificate of Insurance.
25.10.110 Continuation.
25.10.120 Journeymen pipefitters.
25.10.130 Qualifications for an apprentice pipefitter.
25.10.140 Mechanical Regulations and Inspections Section.
25.10.150 Mechanical Inspection Supervisor.
25.10.160 Appointment of mechanical inspectors.
25.10.170 Rule making authority.
25.10.180 Suspensions and cancellations.
25.10.190 Applications.
25.10.200 Permits.
25.10.210 Notices and orders.
25.10.220 Inspections.
25.10.230 Credentials.
25.10.240 Department records.
25.10.250 Amendments.
25.10.260 Time limit.
25.10.270 Permit cancellation.
25.10.280 Work not in compliance.
25.10.290 Action on permit application.
25.10.300 Previous permit approvals.
25.10.310 Automatic revocation of permit.
25.10.320 Payment of fees.
25.10.330 Compliance with Code.
25.10.340 City of Saint Louis projects.
25.10.350 Unlawful continuance.
25.10.360 Inspection during installation.
25.10.370 Concealing work.
25.10.380 Final inspections.
25.10.390 Notice.
25.10.400 Reinspection.
25.10.410 Right of entry.
25.10.420 Violation.
25.10.430 Notice of violations.
25.10.440 Time for compliance and notification to department.
25.10.450 Stop work order notice.
25.10.460 Unlawful continuance.
25.10.470 Vacating structures.
25.10.480 Defective mechanical systems.
25.10.490 Change in use.
25.10.500 Minor repairs.
25.10.510 Maintenance.
25.10.520 Responsibility.
25.10.530 Provisions to be liberally construed.
25.10.540 Penalty for violation.

25.10.010 Mechanical Code—Defined.

These regulations together with City of St. Louis Ordinance 60513 codified in Section 25.04.010 of this code, shall be known as the Mechanical Code of the City of St. Louis, herein referred to as "the Code." The Building Commissioner of the City of St. Louis or his representative shall be responsible for enforcing the provisions of this Code. (1994 C., § 25.10.010; Ord. No. 62579, § 1, 1992.)

25.10.020 Scope of Code.

A. There is hereby established a Board of Examiners for Mechanical Contractors which shall govern mechanical and pipefitting contractors who perform work under this Code of the following prescribed nature: Contractors involved in any or all of the functions described herein, including the laying out, fabrication, assembly, installation and maintenance of pressurized piping and piping systems, fixtures and equipment for steam and hot water heating, cooling, lubricating, and industrial processing systems.

B. The specific functions performed by said contractors would include any of the following: The selection of the type and size of pipe and related materials according to job specifications with respect to such

work; the inspection of work sites to determine the presence of obstructions and to ascertain that holes will not cause structural weakness; the planning of the sequence of installation to avoid obstructions and activities of other construction workers, the cutting of pipe using a hacksaw, pipe cutters, hammer and chisel, cutting torch, pipe cutting machine or any other equipment used to perform the same general functions as this equipment; the threading of pipe using a threading machine; the bending of pipe by hand or with a pipe bending machine; the assembly and installation of a variety of metal and nonmetal pipe and pipe fittings including those made of brass, copper, glass and plastic with respect the work described above; the joining of by means of a threaded, caulked, soldered, brazed, fused or cemented joint; the securing of pipe to structures with clamps, brackets and hangers using hand tools; the installation and maintenance of refrigeration and air-conditioning systems including compressors, pumps, meters, and hydraulic controls and piping on commercial building; the testing of piping systems for leaks by increasing pressure in pipes and observing gauges attached to pipes for indication of leaks.

C. All of the functions described in Subsection B of this section must be with respect to the specific work described at the outset of this section and such work shall not be interpreted in any event to include the installation, repair or maintenance of elevators. This Code shall apply to the above-described functions only as they relate to the new construction, replacement, maintenance, overhauling, general repair, renovation, rebuilding, rehabilitation or remodeling of mechanical systems which are: Steam piping on piping systems; pressurized piping systems in waste water and sewage treatment facilities; pressurized and vacuum piping in processing and industrial pipe installations through which hazardous, toxic or poisonous substances flow; pressurized piping in air conditioning systems in commercial structures of 14 tons and above; pressurized piping in heating systems in commercial structures of 300,000 British Thermal Units (BTUs) and above.

D. This Code shall apply only to commercial structures and shall not apply to any residential building with six (6) or fewer dwellings. This Code shall not apply to any work of an aggregate mechanical contract price of twenty-five thousand dollars ($25,000.00) or less. This Code shall be interpreted in conjunction with other building and safety codes by the Building Commissioner or his designated representative.

E. Alterations or repairs to any mechanical system shall conform to that required for a new mechanical system without requiring the existing mechanical system to comply with all of the requirements of this Code. Alterations or repairs shall not cause an existing mechanical system to become unsafe nor adversely affect the performance of the mechanical system. Where additions or alterations subject parts of existing systems to loads exceeding those permitted herein, such parts shall be made to comply with this Code. This Code does not apply to any mechanical work performed by employees of an owner, lessee, or keeper of the structure in which the work is performed or to any public utility and/or its employees. (1994 C., § 25.10.020; Ord. No. 62579, § 2, 1992.)

25.10.030 Board of Examiners for Mechanical Contractors.

The Board of Examiners for Mechanical Contractors who install mechanical equipment shall be composed as follows: The Mayor shall appoint one (1) employing mechanical contractor who performs work within the City of St. Louis and one (1) registered professional engineer who shall be an employee of the City of St. Louis, two (2) journeyman pipefitters as that term is defined herein (one of which shall be involved primarily in maintenance work and one of which shall be involved primarily in industrial work), and one (1) user of a mechanical system subject to this Code which user shall be either an owner, lessee or keeper of any commercial structure with a mechanical system or the agent of such a person. Each of the above shall be a United States Citizen. They shall review each applicant's qualifications for licensing. (1994 C., § 25.10.030; Ord. No. 62579, § 3, 1992.)

25.10.040 Review Committee.

The Board of Examiners shall appoint two (2) of each employees of the Plumbing and Mechanical Section and two (2) each for the Mechanical Industry to interview individuals applying for licensing as to their qualifications and experience. (1994 C., § 25.10.040; Ord. No. 62579, § 4, 1992.)

25.10.050 Secretary of the Board—Duties.

The duties of the Secretary of the Board of Examiners shall be as stated with respect to similar Boards. The Secretary of the Board shall be nonvoting. The Secretary shall record all meeting notices. (1994 C., § 25.10.050; Ord. No. 62579, § 5, 1992.)

25.10.060 Term of office—Compensation.

The members of the Board of Examiners shall hold office for a term of four (4) years or until their successors are duly appointed and qualified by the Mayor. Initial appointments to the Board of Examiners shall be for the following terms: mechanical system user—4 years; mechanical contractor—3 years; journeyman pipefitter—2 years. The non-City employees shall receive compensation for their services if provided by separate ordinance on a per-meeting basis. (1994 C., § 25.10.060; Ord. No. 62579, § 6, 1992.)

25.10.070 Powers and duties of the Board of Examiners.

The powers and duties of the Board of Examiners shall be the same for mechanical contractors as provided in Section P.23.3.2 of the Code for master plumbers and master drainlayers. (1994 C., § 25.10.070; Ord. No. 62579, § 7, 1992.)

25.10.080 Qualifications for mechanical contractors.

A. Mechanical contractors shall be in responsible charge of the work of person(s) who have served an apprenticeship program covering the work described in Section 25.10.020 certified by the U.S. Department of Labor or who shall have worked as a journeyman performing said work for 5,000 hours in the previous five (5) years, or have equivalent training and experience. Only journeyman pipefitters as defined herein and apprentices working under their supervision shall perform the work described in Section 25.10.020. In addition, mechanical contractors shall comply with the guidelines and requirements of the City of St. Louis relating to equal opportunity in employment.

B. Manufacturer representative business entities and their employees engaged in the supply of equipment involving pressure pipe, pressure vessels, fired and unfired, cooling, heating or compressed air which by contract with manufacturers to supply parts, (proprietary) repairs, maintenance, start-up, testing, tuning and replacements shall be certified to perform to the extent that their duties and responsibilities are defined and required by contract with equipment manufacturers. A journeyman status to existing manufacturer trained service personnel shall be granted and apprentice requirements and training shall be approved under the control of manufacturer trained specialists and shall be approved in said manufacturer representative business entities. Any employee of a manufacturer representative business entity upon leaving said business entity shall be required to relicense themselves by a test administered by the section of Mechanical Regulations and Inspection and shall be required to show proof of 5,000 hours experience in the previous five (5) years.

C. Manufacturer representative business entities holding the National Board of Boiler and Pressure Vessel Inspectors "R" stamp shall be deemed authorized to perform work on pressure vessels and associated attachments as previously required by City and State Code. Service personnel with certification provided by said business entity shall be licensed as journeymen pipefitters and apprentices as applicable in accordance with this Code. (1994 C., § 25.10.080; Ord. No. 62579, § 8, 1992.)

25.10.090 Mechanical certification fees.

Mechanical contractors employing registered apprentices and licensed journeyman pipefitters shall be reviewed by the Board of Examiners. The review shall determine the contractors qualifications and experience as regards installation or testing on mechanical equipment using qualified pipefitter personnel. Upon qualifying, the mechanical contractor will be issued a certificate by the Division of Building and Inspection for a three (3) year period. The certificate fee shall be one hundred dollars ($100.00) for three (3) years. The certificate will state the contractor's name, address, name of firm if not their own, and certificate number. When the mechanical contractor has qualified; the contractor will be issued a certificate for the performance of work covered by this Mechanical Code. There shall be a notice of renewal sent to last known address of certificate holder and a thirty (30) day grace period after expiration shall be given in which renewal shall be given without requalification or re-examination. (1994 C., § 25.10.090; Ord. No. 62579, § 9, 1992.)

25.10.100 Certificate of Insurance.

A copy of a Certificate of Insurance for combined $300,000.00 minimum limits liability insurance for bodily injury and property damage shall be submitted to the Mechanical Section on or before January 15th of each year by a certified mechanical contractor. The certificate shall state the insurance company's name, address, phone number, kind of insurance, coverage and policy number. Permits will not be issued to contractors who fail to file a Certificate of Insurance with the Mechanical Section annually or whose insurance has lapsed. (1994 C., § 25.10.100; Ord. No. 62579, § 10, 1992.)

25.10.110 Continuation.

Mechanical contractors presently doing work as described in Section 25.10.020 who meet the requirements of this Code, or who have permits in effect issued from appropriate Divisions of the Mechanical Department may continue in their operations for 180 days after implementation of the chapter without a permit certification. Initial certificates shall be issued to those mechanical contractors presently doing work as described in Section 25.10.020 who apply for said certificates with the Division of Building and Inspection within 180 days of the effective date of the chapter. In order to receive a certificate without additional examination a contractor must show to the Building Commissioner or his representative proof of performance of the work described in Section 25.10.020 within this initial 180-day period. Thereafter, mechanical contractors must acquire and maintain certificates as determined by the Division of Building and Inspection. No additional testing will be required of those mechanical contractors receiving certificates during the initial 180-day period from the effective date of this chapter unless the mechanical contractor allows said certificate to not be renewed under the provisions of Section 25.10.090 of this Code or unless the mechanical contractor has had said certificate suspended or revoked under the provisions of Section 25.10.180 of this code. (1994 C., § 25.10.110; Ord. No. 62579, § 11, 1992.)

25.10.120 Journeymen pipefitters.

Journeyman pipefitters are employees of mechanical contractors performing the work described in Section 25.10.020 hereof shall be licensed within the City of St. Louis prior to performing any of said work. Journeyman pipefitters shall be licensed within the City of St. Louis. Journeyman pipefitters will be issued a journeyman pipefitters license for a three (3) year period for a fee of twenty-five dollars ($25.00). Such license shall be issued during the initial 180 days following the effective date of this chapter to anyone who has completed a bona fide apprenticeship program as defined in Section 25.10.130 or to anyone deemed to have equivalent training and qualifications, and to anyone who can show proof of 3,000 hours work of the type described in Section 25.10.020 during the preceding three (3) years. No additional testing will be required of those journeymen heretofore described as receiving certificates or licenses during the initial 180-day period from the effective date of this chapter unless the journeyman allows said certificate to not be renewed under the provisions of this section of this code. There shall be a notice of renewal sent to the last known address of the journeyman licenses and a (30) day grace period after expiration shall be given in which renewal shall be given without requalification or re-examination. After said initial 180 days all journeymen applicants must successfully pass a test administered by the Section of Mechanical Regulations and Inspections. (1994 C., § 25.10.120; Ord. No. 62579, § 12, 1992.)

25.10.130 Qualifications for an apprentice pipefitter.

Apprentice pipefitters as used herein shall be anyone in the process of serving in an apprenticeship program covering the work described in Section 25.10.020 certified by the Bureau of Apprenticeship and Training of the U.S. Department of Labor and to anyone attending an equivalent training program such as one approved by the North Central Association of Colleges and Schools. The Board of Examiners shall, upon application, review equivalent training programs for approval. Such person must work under the direct personal and immediate supervision of a licensed journeyman pipefitter in the employment of a mechanical contractor. The apprentice shall register with the Plumbing Section and pay a five dollar ($5.00) registration fee. The apprentice will be issued an apprenticeship certificate with "apprentice" plainly marked on it, the apprentice's name and date of issue. The term pipefitter as used in this Code shall include pipefitters as that term is generally used and all mechanical maintenance journeymen and apprentices. (1994 C., § 25.10.130; Ord. No. 62579, § 13, 1992.)

25.10.140 Mechanical Regulations and Inspections Section.

There is hereby created within the Division of Building and Inspection a Section of Mechanical Regulations and Inspections which shall, under the supervision and control of the Building Commissioner, control and enforce all regulations and ordinances pertaining to mechanical design and installation and systems in accordance with this Code. The head of this Section shall be known as the Mechanical Inspection Supervisor, and shall be appointed by the Buildings Commissioner. (1994 C., § 25.10.140; Ord. No. 62579, § 14, 1992.)

25.10.150 Mechanical Inspection Supervisor.

There shall be appointed by the Building Commissioner a Mechanical Inspection Supervisor. The Supervisor shall have five (5) years' experience and possess the qualifications established by the Civil Service Commission under authority of Article Eighteen of the City Charter, and shall receive a salary prescribed in and under the conditions of ordinances adopted thereunder. (1994 C., § 25.10.150; Ord. No. 62579, § 15, 1992.)

25.10.160 Appointment of mechanical inspectors.

There shall be appointed by the Building Commissioner a sufficient number of mechanical inspectors to adequately perform all inspection duties and enforce all ordinances pertaining to the Section of Mechanical Regulation and Inspection in accordance with subsequent sections of this Code and City of St. Louis budget constraints. All mechanical inspectors shall have had at least three (3) years' experience and possess the qualifications set forth by the Civil Service Commission under authority of Article Eighteen of the City Charter, and shall receive salaries as prescribed in and under the conditions of ordinances adopted thereunder. One such inspector shall assist the Mechanical Inspection Supervisor. The assistant shall assume the responsibilities of the Mechanical Inspection Supervisor in the Supervisor's absence. (1994 C., § 25.10.160; Ord. No. 62579, § 16, 1992.)

25.10.170 Rule making authority.

The Building Commissioner shall have power as necessary in the interest of public health, safety and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this Code to secure the intent thereof and to designate requirements applicable because of local climatic or other conditions. Such rules shall have the effect of furthering or interpreting mechanical safety and adequacy. (1994 C., § 25.10.170; Ord. No. 62579, § 17, 1992.)

25.10.180 Suspensions and cancellations.

The Building Commission or any citizen shall have the right to recommend to the Board of Examiners for Mechanical Contractors a suspension or revocation of any Certificate or License granted hereunder if, after notice and opportunity to be heard, the party named therein is found by the Board of violating rules and regulations established by the Building Commissioner or Section of Mechanical Regulations and Inspections or of violating provisions of the Code. The Board of Examiners for Mechanical contractors may suspend or revoke such certificates or licenses. (1994 C., § 25.10.180; Ord. No. 62579, § 18, 1992.)

25.10.190 Applications.

No mechanical system shall be installed within or on any building or premises, nor shall any alterations or additions be made in any such existing installations, without first filing in the office of the Building Commissioner a written application or forms prepared and provided by the Building Commissioner for a permit to do the work contemplated, except as provided in this Code. Such application shall include, but not be limited to, description in detail of the nature of the work, the location thereof by street and number, the date of the beginning of such work and the tentative completion date thereof, the use and occupancy and proposed occupancy of the building. No person shall begin such work unless and until said person has received such permit. No permit provided for in this section shall be assignable or transferable or used to aid or abet any unlicensed person in the performance of mechanical work. Should the Building Commissioner find that such work is completed in accordance with the provisions of this chapter, the Official shall, assuming payment of the prescribed inspection fee has been made, approve such work. Such fee shall be paid prior to commencement of work. If the Building Commissioner should find that the work be not completed in accordance with the provisions of this chapter or that the work was done by a person not licensed as hereinafter provided, the Building Commissioner is hereby empowered, in addition to the other penalties, to order the closing of said building, structure or premises where such work has been done until such work is remedied and properly performed or to direct such other action as he deems appropriate. It shall be unlawful to use or permit the use of the building, structure or premises unless the required permit has been issued by the Building Commissioner. Nothing in this Code is applicable to buildings, structures or premises owned and operated by the United States of America or the State of Missouri. (1994 C., § 25.10.190; Ord. No. 62579, § 19, 1992.)

25.10.200 Permits.

The Permit for Mechanical installation or a facsimile thereof shall be available at the job site. Permits shall be required of all mechanical contractors involved in

mechanical installation as the term new construction is ordinarily used in the context of the Missouri Prevailing Wage Law, RSMo 290.210 et seq.

1. *Permit Required.* No owner, lessee or keeper of any commercial structure, or the agent thereof, where such agent orders mechanical work to be done, shall cause or permit mechanical work, except minor repairs to be done, in, upon, or about any building, structure, or premises until the person proposing to do such work shall have first procured a permit from the Building Commissioner authorizing it to be done, nor shall any person commence any mechanical work until they shall have obtained a permit of said Building Commissioner authorizing said work to be done. The fees for said permits shall be paid to the Building Division or the City of St. Louis for each permit herein required. All work shall be done, supervised or controlled by a person in whose name the permit or permits required by this section are issued.

2. *By Whom Application is Made.* Application for a permit shall be made by the owner, lessee or keeper of commercial premises, or an agent, responsible for the installation of all or part of any mechanical system. The applicant shall meet all qualifications established by this Code.

3. *Plans and Specifications.* The Building Commissioner is authorized to require the submission and approval of plans and specifications in triplicate showing the nature and extent of the proposed work before a permit is issued. If, in the course of the work, it is found necessary to make any change from the approved plans and specifications on which a permit has been issued, amended plans and specifications shall be submitted, and if approved, a supplementary permit shall be issued to cover the change after the same conditions required to secure the original permit have been satisfied. (1994 C., § 25.10.200; Ord. No. 62579, § 20, 1992.)

25.10.210 Notices and orders.

The Building Commissioner shall issue all necessary notices or orders to abate illegal or unsafe conditions and to ensure compliance with all Code requirements for the safety and general welfare of the public. (1994 C., § 25.10.210; Ord. No. 62579, § 21, 1992.)

25.10.220 Inspections.

The Building Commissioner or his representative shall make all required inspections, or may accept reports of inspection by authoritative and recognized services or individuals. All reports of such inspections shall be in writing and certified by a responsible officer of such authoritative service or by the responsible individual. The Building Commissioner is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise. (1994 C., § 25.10.220; Ord. No. 62579, § 22, 1992.)

25.10.230 Credentials.

The Building Commissioner or an authorized representative shall carry proper credentials of office for the purpose of inspecting any and all buildings and premises in the performance of their duties. (1994 C., § 25.10.230; Ord. No. 62579, § 23, 1992.)

25.10.240 Department records.

The Building Commissioner shall keep official records of mechanical applications received, permits, licenses and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for three (3) years except notices and orders which have been complied with need not be kept. (1994 C., § 25.10.240; Ord. No. 62579, § 24, 1992.)

25.10.250 Amendments.

Amendments to a plan, application or other records accompanying the same shall be filed at any time before the work for which the amended permit is sought or issued. Such amendments shall be deemed part of the original application and shall be filed therewith and shall be filed and processed as the original application. (1994 C., § 25.10.250; Ord. No. 62579, § 25, 1992.)

25.10.260 Time limit.

An application or a permit for any proposed work shall be deemed to have been abandoned six (6) months after the date of filing and acceptance, unless such application has been diligently prosecuted or a permit shall have been issued. The Building Commissioner shall grant one or more extensions of time for additional periods not exceeding one hundred and eighty (180) days if there is reasonable cause. (1994 C., § 25.10.260; Ord. No. 62579, § 26, 1992.)

25.10.270 Permit cancellation.

A permit will be considered for cancellation under the following provisions: The owner of the property or the contractor requests cancellation in writing stating the reasons for the request for cancellation or Building Commissioner may revoke the permit for fraud, mis-

representation of fact in application, for noncompliance with the Code plans submitted, or for failure to pay the prescribed fees. No refund of fees shall be made when a permit is canceled. (1994 C., § 25.10.270; Ord. No. 62579, § 27, 1992.)

25.10.280 Work not in compliance.

Should the mechanical contractor install work that is not in compliance with the Mechanical Code, the contractor shall be directed by the Building Commissioner to make necessary corrections pursuant to provisions of Section 117.0 of Ordinance 60664 and Section M-117.0 of Ordinance 60513 to ensure compliance and no other permits shall be issued to said contractor until such work is corrected and approved by the Building Commissioner. (1994 C., § 25.10.280; Ord. No. 62579, § 28, 1992.)

25.10.290 Action on permit application.

The Building Commissioner or his representative shall examine or cause to be examined all applications for permits and amendments thereto. If the application or plans do not conform to the requirements of all pertinent laws relating to mechanical systems, such application shall be rejected in writing, stating the reasons therefor. If the Building Commissioner is satisfied that the proposed work conforms to the requirements of this Code and all laws and ordinances applicable thereto, a permit shall be issued. A mechanical permit shall not be transferable. (1994 C., § 25.10.290; Ord. No. 62579, § 29, 1992.)

25.10.300 Previous permit approvals.

No provisions of this code shall require changes in the mechanical system of a building for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the installation of which shall have been actively prosecuted within ninety (90) days after the effective date of this Code and completed with dispatch unless there is a proposed change in the building, mechanical system or use. (1994 C., § 25.10.300; Ord. No. 62579, § 30, 1992.)

25.10.310 Automatic revocation of permit.

Any permit issued shall become invalid and revoked if the authorized work is not commenced within six (6) months after issuance of the permit, or if the authorized work is suspended or not prosecuted for a period of six (6) months after the commencing the work. (1994 C., § 25.10.310; Ord. No. 62579, § 31, 1992.)

25.10.320 Payment of fees.

A permit shall not be issued until a fee of $20.00 to the Building Commission has been paid. A permit may be revoked if payment is returned for insufficient funds. (1994 C., § 25.10.320; Ord. No. 62579, § 32, 1992.)

25.10.330 Compliance with Code.

The permit shall be a license to proceed with the work and shall not be construed as authority to violate, cancel or set aside any of the provisions of this Code, except as specifically stipulated by modification or legally granted variation as described in the application. (1994 C., § 25.10.330; Ord. No. 62579, § 33, 1992.)

25.10.340 City of Saint Louis projects.

Mechanical permit fees shall be waived for contractors working in facilities owned and operated by the City of Saint Louis. This shall apply only to those structures located within the geographical limits of the City of Saint Louis. However, permits, inspections and Code compliance in all other respects shall be required. (1994 C., § 25.10.340; Ord. No. 62579, § 34, 1992.)

25.10.350 Unlawful continuance.

No person who shall continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed by the Building Commissioner to perform to remove a violation or unsafe condition. (1994 C., § 25.10.350; Ord. No. 62579, § 35, 1992.)

25.10.360 Inspection during installation.

During the installation of mechanical systems and equipment, the Building Commissioner shall make inspections to insure compliance with the provisions of this Code. Where applications for unusual design or magnitude of construction are filed or where code reference standards require special or engineering inspections, the Building Commissioner is authorized to require project representation by an engineer. This project representative shall keep records and submit reports as required by the Building Commissioner. This special professional service requirement shall be determined prior to the issuance of the permit and shall be a prerequisite for the permit issuance. (1994 C., § 25.10.360; Ord. No. 62579, § 36, 1992.)

25.10.370 Concealing work.

Work in connection with a mechanical system shall not be covered or concealed until it has been inspected

and permission to conceal has been approved. (1994 C., § 25.10.370; Ord. No. 62579, § 37, 1992.)

25.10.380 Final inspections.

Upon completion of the mechanical work, a final inspection shall be made. All violations of the Code and any approved plans and permit shall be noted, and the holder of the permit shall be notified of the violations. (1994 C., § 25.10.380; Ord. No. 62579, § 38, 1992.)

25.10.390 Notice.

Every person, within one (1) week after the completion of any mechanical work, shall notify the Building Commissioner in the Mechanical Inspection Section, which notice shall describe the work done, giving the address by street and number, and thereupon the Building Commissioner shall inspect the same. (1994 C., § 25.10.390; Ord. No. 62579, § 39, 1992.)

25.10.400 Reinspection.

A mechanical inspection for which a building, structure or premises has been closed for a period of thirty (30) days or more, shall not be reopened until the system has been reinspected and a new certificate of inspection issued. (1994 C., § 25.10.400; Ord. No. 62579, § 40, 1992.)

25.10.410 Right of entry.

In the discharge of duties, the Building Commissioner or an authorized representative shall have the authority to enter at any reasonable hour any building, structure or premises in the City of Saint Louis to enforce the Code provisions. (1994 C., § 25.10.410; Ord. No. 62579, § 41, 1992.)

25.10.420 Violation.

In addition to any other prohibited acts hereunder, it shall be unlawful to install, extend, alter, repair or maintain mechanical systems in or adjacent to buildings except in conformity with this Code. It shall also be unlawful for any person, firm or corporation to state, advertise, write, print or in any way infer the holding of a license or a Certificate as a Mechanical Contractor in the City of Saint Louis without actually holding such license or certificate. This shall include, but not be limited to, business cards, bills or advertising in any manner. In addition, it shall be unlawful to use a license or certificate in such a way that enables unlicensed persons, firms or corporations without said licenses or certificates to perform work in the City of Saint Louis. (1994 C., § 25.10.420; Ord. No. 62579, § 42, 1992.)

25.10.430 Notice of violations.

If the building inspection, reinspection, test or review of plans or permits reveals failure of any new installation, addition, alteration or replacement to comply with the provisions of this Code, the installation shall be declared unlawful by the Building Commissioner, and a written notice of violation shall be given or mailed to either the responsible individual, person, firm or corporation to whom the permit was issued, or to the owner, or both; or to the legally authorized representative of the permit holder, owner or both. If the notice of violation is not complied within seven days, such person shall have violated the chapter and in addition to any other penalty, the Building Commissioner may request the City Counselor to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful use of an mechanical system in violation of the provisions of this Code or of the order or direction made pursuant thereto, or to prevent illegal occupancy of a building, structure or premises, or to stop an illegal act, conduct, business or use of a building or structure in or about any premises. (1994 C., § 25.10.430; Ord. No. 62579, § 43, 1992.)

25.10.440 Time for compliance and notification to department.

All notices of violation shall indicate the time allowed for compliance. Upon compliance with the notice, the recipient of the notices, the recipient's agent, contractor or subcontractor shall notify the Building Commissioner according to the procedure set forth in this Code. Upon notification, the Building Commissioner shall reinspect the premises in which the violation was found, and if compliance is shown to exist, the violation notice shall be terminated and type of inspection recorded. (1994 C., § 25.10.440; Ord. No. 62579, § 44, 1992.)

25.10.450 Stop work order notice.

Upon notice from the Building Commissioner that work on any building or structure is being prosecuted contrary to the provisions of this Code or in an unsafe and dangerous manner, or without permit, such work may be immediately stopped. The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. It shall state the conditions under which work will be permitted to resume upon

approval of the Building Commissioner. (1994 C., § 25.10.450; Ord. No. 62579, § 45, 1992.)

25.10.460 Unlawful continuance.

Any person who shall continue any mechanical work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe conditions shall, if convicted, be subjected to the penalty provisions of this Code. (1994 C., § 25.10.460; Ord. No. 62579, § 46, 1992.)

25.10.470 Vacating structures.

Where there is an actual and immediate condition which would endanger life, the Building Commissioner is authorized and empowered to order and require the occupants to vacate a building, structure or premises forthwith. The code official shall cause to be posted at each entrance to such building, structure or premises a notice reading as follows: "This Structure is Unsafe and Has Been Condemned for Occupancy." It shall be unlawful for any person to enter such structure except for the purpose of making the required repairs or removal. The procedure for this shall be as set out in the Existing Structures Code of the City of Saint Louis, as amended. (1994 C., § 25.10.470; Ord. No. 62579, § 47, 1992.)

25.10.480 Defective mechanical systems.

A. Should the Building Commissioner or his representative find that any mechanical systems, or portion thereof, of any building, structure, premises, or any portion thereof be in such a defective condition and in violation of the Mechanical Code as likely to cause immediate danger or likely to cause immediate injury to the lives of persons located within such building, or structure or upon such premises, or likely to cause immediate injury or damage to such building or structure, or any property or structure within or without the immediate area of such building, structure or premises, or upon the premises wherein such system is located, the Building Commissioner or his representative shall forthwith notify the owner or owners, or tenant or tenants, or lessee or lessees, or the occupant or occupants of such fact, and order the owner or owners, tenant or tenants, lessee or lessees, or the occupant or occupants to remove all persons therefrom forthwith and forthwith render the mechanical system safe and to correct such defective condition within twenty-four (24) hours or to shut down the system until it is made safe with the defective condition corrected. Should such system be not made safe and placed in a safe condition within such twenty-four (24) hour period or should such system not be shut down as ordered by the code official, the Building Commissioner is hereby authorized to consider the building, structure or premises unsafe and officially seal the building, structure or premises as out of service or use until ordered otherwise by the Building Commissioner.

B. Any owner or owners, tenant or tenants, lessee or lessees, occupant or occupants of such building, structure or premises aggrieved by any action of the Building Commissioner under the provisions of this Article, may appeal such action to the Board of Building Appeals as provided by the City of Saint Louis Building Code. The code official or his representative has the authority to post a placard in a conspicuous place on a building or premises where the mechanical system has been found to be unsafe or inadequate, announcing the unsafe or inadequate building condition. Placards shall remain on said building until the required repairs, replacements or improvements have been made and accepted by the Building Commissioner and it shall be unlawful to deface or willfully remove any such placard that has been posted on a building without first obtaining consent of the Building Commissioner. It shall be unlawful for any person to reside in, use, rent, lease or occupy such building for any purpose while so placarded. (1994 C., § 25.10.480; Ord. No. 62579, § 48, 1992.)

25.10.490 Change in use.

It shall be unlawful to make any change in the use of occupancy of any structure which subjects it to any special provisions of this Code without approval, and certification that such structure meets the intent of the provisions of law governing building construction for the proposed new use and occupancy and that such change does not result in any hazard to public health, safety or welfare. (1994 C., § 25.10.490; Ord. No. 62579, § 49, 1992.)

25.10.500 Minor repairs.

Minor repairs or replacements in an existing system do not require permit application, provided such repairs or replacements are made in a safe manner and further provided that such repairs or replacements are for an aggregate mechanical contract price of not more than twenty-five thousand dollars ($25,000.00). (1994 C., § 25.10.500; Ord. No. 62579, § 50, 1992.)

25.10.510 Maintenance.

All mechanical systems, both existing and new, shall be maintained in a safe condition. All service equipment, devices and safeguards which are required by this Code or which were required in a building or structure by previous statute or ordinance, shall be maintained in working order. (1994 C., § 25.10.510; Ord. No. 62579, § 51, 1992.)

25.10.520 Responsibility.

The owner and designated agent and the persons collecting rent shall be responsible for repairs and renovations of unsafe equipment, fixtures, and devices and for the safe maintenance of the mechanical system in any building or structure at all times. Installed fixtures and mechanical equipment of any building or premises found to be in an unsatisfactory or hazardous condition shall be repaired, renovated, replaced or removed within 7 days subsequent to the issuance of a written notice of the unsafe or hazardous condition by the Mechanical Division of Building and Inspection or the Building Commissioner. (1994 C., § 25.10.520; Ord. No. 62579, § 52, 1992.)

25.10.530 Provisions to be liberally construed.

These sections which shall be known as the Mechanical Code of the City of Saint Louis shall be construed liberally and justly to secure proper licensing and certification for contractors performing the work in whole or in part as described in this Code. (1994 C., § 25.10.530; Ord. No. 62579, § 53, 1992.)

25.10.540 Penalty for violation.

Any person found violating any provision of this chapter shall be subject to penalties set forth in Section 117.4 of Ordinance 60664 and M-117.4 of Ordinance 60513. (1994 C., § 25.10.540; Ord. No. 62579, § 54, 1992.)

Chapter 25.11

RESIDENTIAL CODE

Editor's Note:

Ord. No. 70795, adopted July 6, 2018, adopting the 2018 International Residential Code for One- and Two-family Dwelling; with amendments, including Appendices E, F, G, H, J, K, M, R, S, and T, repealing and replacing Ordinance No. 68789. Ord. No. 68789, adopted Nov. 8, 2010, repealed Ch. 25.11 and enacted a new chapter. The former Ch. 25.11, §§ 25.11.010—25.11.290, pertained to similar subject matter and derived from Ord. No. 66789, §§ 2—4, 2005.

Sections:

25.11.010 Adoption.
25.11.020 Amendments.
25.11.030 Penalty.

25.11.010 Adoption.

The 2018 International Residential Code for One- and Two-family Dwellings as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Residential Code for One- and Two-family Dwellings, including Appendices E, F, G, H, J, K, M, R, S, and U, is hereby adopted as the Residential Code for One- and Two-family Dwellings of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.943 for the regulation of the design, construction, quality of materials, erection, installation, alteration, repair, location, relocation, replacement, addition to, use, or maintenance of one- and two-family dwellings and townhouses not more than three stories in height, and providing for the issuance of permits and collection of fees therefor; and each of the regulations, provisions, conditions, and terms of such control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Residential Code are hereby referred to, adopted, and made a part hereto, as if fully set out in this chapter with the amendments prescribed in Section 25.11.020. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 70795, § 2, 7-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.11.020 Amendments.

The 2018 International Residential Code for One- and Two-family Dwellings is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add new Chapter 1 to read as follows:

CHAPTER 1

SCOPE AND ADMINISTRATION

SECTION R101 GENERAL

R101.1 Title. These regulations shall be known as the Residential Code for One- and Two-Family Dwellings of the City of Saint Louis, hereinafter referred to herein as "this code."

R101.2 Scope. The provisions of this code shall apply to the grading, excavation, new construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of detached one- and two-family dwellings, multiple single-family dwellings (townhouses) with a separate means of egress, and their accessory structures not more than three stories in height.

Exceptions:

1. Live/work units complying with the requirements of Section 419 of the Building Code shall be permitted to be built in accordance with this code. Fire suppression required by Section 419.5 of the Building Code when constructed under this code shall conform to Section 903.3.1.3 of the Building Code.

2. Owner-occupied lodging houses with five or fewer guest rooms shall be permitted to be constructed in accordance with this code where equipped with a fire sprinkler system in accordance with Section 903.3.1.3 of the Building Code.

3. Existing buildings undergoing repair, alteration or additions, and change of occupancy shall be permitted to comply with the Existing Building Code.

R101.3 Intent. The purpose of this code is to establish the minimum requirements to safeguard the public health, safety, and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide a reasonable level of safety to fire fighters and emergency responders during emergency operations.

SECTION R102 APPLICABILITY

R102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

R102.2 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law. Where the provisions of this code conflict with other ordinances or regulations, the most stringent requirements shall apply. The building official shall not be the enforcement officer for such other ordinances or regulations unless specified therein.

R102.3 Application of References. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this code.

R102.4 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections R102.4.1 and R102.4.2. Referenced standards shall be permitted to be updated by rule making authority of the building official.

Exception: Where enforcement of a code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing and manufacturer's instructions shall apply.

R102.4.1 Conflicts. Where conflicts occur between provisions of this code and referenced codes and standards, the provisions of this code shall apply.

R102.4.2 Provisions in Referenced Codes and Standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard.

R102.5 Appendices. Provisions of the appendices shall not apply unless specifically referenced in the adopting ordinance.

R102.6 Partial Invalidity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

R102.7 Existing Structures. The legal occupancy of any structure existing on the date of the adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the Existing Building Code, the Property Maintenance Code, or

the Fire Code, or as deemed necessary by the building official for the general safety and welfare of the occupants and the public.

R102.7.1 Additions, Alterations, or Repairs. Additions, alterations, or repairs to any structure shall conform to that required for a new structure without requiring the existing structure to comply with all of the requirements of this code, unless otherwise stated. Additions, alterations, repairs, and relocations shall not cause an existing structure to become unsafe or adversely affect the performance of the building.

R102.7.2 Buildings Not Previously Occupied. A building or portion of a building that has not been previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of the this code for new construction or with any current permit for such occupancy.

R102.8 Matters Not Provided For. Any requirements that are essential for structural, fire, or sanitary safety of an existing or proposed building or structure, or for the safety of the occupants thereof, and which are not specifically provided for by this code, shall be determined by the building official.

The building official shall be permitted to delegate to the Department of the President, Board of Public Service, responsibility for code compliance inspections on projects within the City limits let by the Board of Public Service or let as an Emergency Agreement. If such delegation is made, that office shall certify in writing to the building official at the completion of the project that they did inspect and believe the project to comply with this code.

R102.9 Buildings, Structures, or Premises Partly Within City Limits. When a building, structure, or premises is constructed partly within the City and partly within county limits, the Building Commissioner shall be authorized to enter into agreements with the adjoining code jurisdictions to avoid duplications of inspections, fees, and permits.

R102.10 Restrictions. No building or structure shall be constructed, extended, repaired, removed, altered or occupied in violation of these provisions, except for repairs as defined in Section R105.2.2, and except further that the raising, lowering or moving of a building or structure as a unit necessitated by a change in legal grade or widening of a street shall be permitted, provided the building or structure is not otherwise altered or its occupancy changed. Political subdivisions of the State of Missouri, including, but not limited to, the Board of Education, Metropolitan Sewer District, Saint Louis Housing Authority, Saint Louis Police Department, Metro Transit, Planned Industrial Expansion Authority, Land Clearance for Redevelopment Authority, Land Reutilization Authority, Saint Louis Development Corporation, and the Regional Convention and Sports Complex Authority are covered under the provisions of this code for all property within the City limits.

Exceptions:

1. Structures owned and occupied by the United States of America or the State of Missouri.
2. City of Saint Louis-owned property located outside of the City Limits.
3. Existing building occupancies that are licensed by the State of Missouri as family child care homes providing home day care, as specified in Section 310.3.
4. Structures located within cemetery boundaries which are less than 1,000 square feet in area and less than 20 feet in height, measured from grade to the highest point.
5. Laying or relaying of railroad trackage sidings and their appurtenant signals, culverts and structures.
6. A construction project located in the public right-of-way (R.O.W.).

SECTION R103 DIVISION OF BUILDING AND INSPECTION

R103.1 Creation of Enforcement Agency. There is hereby created the Division of Building and Inspection. The Division shall consist of Sections, including, but not limited to: Administration Section, Building Inspection Section, Central File Section, Court Section, Electrical Inspection Section, Mechanical Inspection Section, Permit Section, Plan Exam Section, Plumbing Inspection Section, and Zoning Section.

R103.2 Building Commissioner. The head of the Division of Building and Inspection shall be known as the Building Commissioner, in accordance with Section 15, Article 13 of the Charter of the City of Saint Louis.

R103.2.1 Appointment; qualifications. The Building Commissioner, also herein referred to as the building official, shall be a Missouri licensed professional architect, or, a Missouri licensed professional engineer, or shall have a bachelors degree in an appropriately related field with Certified Building Code Official status, or shall have a masters degree in an appropriately

related field and five years' experience in building code enforcement at a senior management level. The Building Commissioner shall be appointed by the Director of Public Safety.

R103.3 Organization. The building official shall appoint such numbers of architects, engineers, technical assistants, inspectors and other employees such as clerks, typists, and cashiers as shall be necessary for the administration of the codes governed by this chapter, and as authorized by the building official in conformance with Civil Service qualifications and regulations. The building official shall be permitted to delegate appropriate subordinates to act in the exercise of the duties of this code, and they also shall be designated as building officials. The building official is authorized to designate employees as needed who shall exercise all the powers of the building official during the temporary absence or disability of the building official.

R103.4 Restriction of Employees. An official or employee connected with the Division of Building and Inspection, except one whose only connection is that of a member of the Board of Building Appeals, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building, or the preparation of construction documents therefor, unless that person is the owner of the building, or a first degree relative of the owner of the building; nor shall such officer or employee engage in any work which conflicts with official duties or with the interests of the Division of Building and Inspection.

Further, no Building Division employee shall be employed by or serve as an employee of any other division within the City service unless a formal request is made by the Building Commissioner to and approved by the appointing authority of that Division.

SECTION R104 DUTIES AND POWERS OF THE BUILDING OFFICIAL

R104.1 General. The building official is hereby authorized and directed to enforce the provisions of this code. The building official shall have the authority to render interpretations of this code and adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall be in conformance with the intent and purpose of this code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

R104.1.1 Rule Making Authority. The Building Commissioner shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code, to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code or violating accepted engineering practice involving public safety.

R104.1.2 Accepted Engineering Practice. In the absence of provisions not specifically contained in this code, the regulations, specifications, and standards listed under referenced standards shall be deemed to represent accepted engineering practice in respect to materials, equipment, systems, or methods of construction.

R104.2 Applications and Permits. The building official shall receive applications; review construction documents; issue or deny permits for the erection, alteration, demolition, moving, or occupancy of buildings, structures, or premises; inspect the premises for which such permits have been issued; and enforce compliance with the provisions of this code.

R104.2.1 Preliminary Meeting. When requested by the permit applicant, the building official shall meet with the permit applicant to discuss plans for the proposed work or change of occupancy prior to the application for a permit in order to establish the specific applicability of the provisions of this code.

R104.2.1.1 Building Evaluation. The building official is authorized to require an existing building to be investigated and evaluated by a licensed design professional based on the circumstances agreed upon at the preliminary meeting. The design professional shall notify the building official if any potential nonconformance with the provisions of this code is identified.

R104.3 Notices and Orders. The building official shall issue all necessary notices or orders to ensure compliance with this code.

R104.4 Inspections. The building official is authorized to make all of the required inspections, or the building official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that

arise, subject to the approval of the appointing authority. The owner shall provide such special inspections as are required by the building official.

R104.5 Identification. The building official shall carry proper identification when inspecting structures, or premises in the performance of duties under this code.

R104.6 Right of Entry. Where it is necessary to make an inspection to enforce the provisions of this code or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous, or hazardous, the building official or designee is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this code, provided that if such structure be occupied, that credentials be presented to the occupant and entry requested. If such structure or premises be unoccupied, the building official shall first make a reasonable effort to locate the owner, owner's authorized agent, or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall have recourse to the remedies provided by law to secure entry.

R104.6.1 Disasters. In the event of a disaster such as windstorm, tornado, flood, fire, earthquake, bomb blast, or explosion, the building official is hereby authorized to enter and inspect structures within the affected area, subject to constitutional restrictions on unreasonable searches and seizures. When, in the opinion of the building official, there is imminent danger of an unsafe condition, the building official shall take emergency measures in accordance with this code. If the building official determines, after inspection, that a structure is unfit, the building official shall declare it a public nuisance, cause a report to be prepared, and notify the affected parties in accordance with this code.

R104.6.1.1 Post-Disaster Inspections. The building official is authorized to deputize Missouri Structural Assessment and Visual Evaluation (SAVE) Volunteer Inspectors certified by the Missouri State Emergency Management Agency (SEMA) to conduct emergency post-disaster safety evaluations of buildings.

R104.7 Department Records. An official record shall be kept of all business and activities of the department specified in the provisions of this code, and all such records shall be open to public inspection at all appropriate times.

A reasonable charge shall be established for making copies of documents. If staff time is required to assemble requested data, an estimate shall be made of personnel charges, including fringe benefits, and a signed agreement made prior to undertaking such projects. The Division of Building and Inspection is not obligated to assemble data into formats that it does not use or need in the ordinary prosecution of its work.

Further, whenever any person, firm, or corporation requests a comprehensive historical investigation of the Division of Building and Inspection records relating to building or occupancy permits, an application fee of $25.00 shall be charged as specified in Section 108.2.1 in addition to all other fees as provided in other sections of this code.

R104.8 Liability. The building official, member of the Board of Building Appeals, or employee charged with the enforcement of this code, while acting for the City of Saint Louis in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered civilly or criminally liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties.

R104.8.1 Legal defense. Any suit or criminal complaint instituted against an officer or employee because of an act Performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordinates shall not be liable for cost or judgment in any action, suit or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

R104.9 Approved Materials and Equipment. Materials, equipment, and devices approved by the building official shall be constructed and installed in accordance with such approval.

R104.9.1 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless they have been reconditioned, tested, and placed in good and proper working condition and approved by the building official.

R104.10 Modifications. Wherever there are practical difficulties involved in carrying out provisions of this code, the building official shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative, provided the building official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life, and fire safety or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the Division of Building and Inspection.

R104.10.1 Flood Hazard Areas. The building official shall not grant modifications to any provisions required in flood hazard areas unless a determination has been made that:

1. There is good and sufficient cause showing that the unique characteristics of the size, configurations, or topography of the site render the elevation standards of this code inappropriate.

2. Failure to grant the modification would result in exceptional hardship by rendering the lot undevelopable.

3. The granting of modification will not result in increased flood heights, additional threats to public safety, or extraordinary public expense; cause fraud on or victimization of the public; or conflict with existing laws or ordinances.

4. The modification is the minimum necessary to afford relief considering the flood hazard.

5. Written notice has been submitted to the applicant specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

R104.11 Alternative Materials, Design, and Methods of Construction, and Equipment. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided any such alternative has been approved. An alternative material, design or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety.

R104.11.1 Research Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

R104.11.2 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the building official shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for the retention of public records.

R104.11.3 Research and Investigations. The building official shall require that sufficient technical data be submitted to substantiate the proposed use of any material or assembly, and if it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the building official shall approve its use subject to the requirements of this code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant or owner.

R104.12 Annual Report. The Building Commissioner shall submit to the Director of Public Safety a written annual report.

SECTION R105 PERMITS

R105.1 Required. Any owner or owner's authorized agent who intends to perform site grading or excavation; to construct, enlarge, alter, make non-ordinary repairs to, move, or demolish a building or structure; to change the occupancy of a building, structure, or premises from one use group to another or to change to a prohibited use; or to cause any such work to be done; or to use explosives for blasting in connection with demolition, excavation, construction, or other building operation shall first make application to the building official and obtain the required permits.

Exception: No permit shall be issued to repair any building or structure condemned in accordance with Section R119 or R120 if such building or structure is included in an executed contract for demolition between the City of Saint Louis and a demolition contractor.

R105.1.1 Preservation Board Permit Requirements. When the ordinances of the Cultural Resources Office (CRO) of the Planning and Urban Design Agency (PUDA) require a permit for items for which this code does not require a permit, applications shall be permitted to be taken by the Division of Building and Inspection and processed solely to the Cultural Resources Office. Both the Building Commissioner and the Cultural Resources Office Director are authorized to place stop work orders. Any appeals or court actions resulting from such citations, applications, or permits shall have technical and aesthetic testimony from the Preservation Board and the staff of the Cultural Resources Office.

R105.1.2 Cultural Resources Office Denial. Unless overruled by the Building Commissioner as a result of an emergency situation or the Planning and Urban Design Commission, a denial from the Preservation Board shall be the final denial; no further notice from the building official shall be required to any person.

105.2 Work Exempt From Permit. Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of the City of Saint Louis. Permits shall not be required for the following:

1. Tuckpointing, ordinary or minor repair to exterior masonry, exterior painting, or similar repair or finish work;

2. Repair or replacement of existing gutters or above-grade portions of downspouts;

3. Recovering or replacing roof covering with the same type of roof covering to a maximum of two layers of roofing. Roofs having a pitch of ¼: 12 or greater but less than 4:12 (low slope roof) shall provide positive drainage. Replacement of 25% or less of roof sheathing;

4. Resealing or restriping of an existing paved parking parking lot, provided the restriping done matches the existing configuration and the number of spaces remain the same. A permit is required to restripe a parking lot for a new parking space and drive arrangement or configuration;

5. Miscellaneous site work, landscaping, gardens, shrubbery, or planting boxes; excavation or fill that does not create a permanent change in property elevation of more than six inches along property lines, block drainage, or create erosion or damage to adjacent properties;

6. Replacement of existing fencing of the same height, material, and location except when enclosing swimming pools, hot tubs, or spas;

7. Retaining walls eighteen inches or less in height above lowest adjacent grade;

8. Tents smaller than 1,000 square feet, or those used for private family events on the same lot as the owner's residence;

9. Statues on private property, erected on grade, not attached to or part of a building or structure;

10. Relining, repairing, patching or shotcreting existing swimming pool walls or floors provided required minimum water depths under diving boards, if present, are maintained;

11. Ordinary or minor repairs to exterior cantilevered balconies, decks, stairs, and fire escapes such as patching or replacing small areas of treads, risers, and platform surfaces; repairing or replacing components such as handrails, tread and riser, guardrail balusters, etc., on existing balconies, stairs and decks with like-for-like materials as long as it does not affect the structural components of the exterior cantilevered balconies, decks, stairs, or fire escapes;

12. Interior painting, floor sanding and refinishing, floor tile or carpeting, replacement of flooring with like material, application of wallpaper and other wall covering material, moveable cases, counters and partitions, and cabinet installation, counter tops, and similar finish work;

13. Plaster patching or gypsum board replacement not exceeding 25% of the total wall or ceiling area of a room or space provided the fire rating and moisture resistance is maintained and no modifications are made;

14. Wall paneling of any type when applied directly to existing room wall surfaces;

15. Installing or replacing ceiling tile of any type, other than foam plastic, when applied directly to existing ceiling surfaces, except when within assembly rooms with more than 300 occupants, institutional rooms or spaces, and corridors or exit stairways of any use. Replacing damaged lay-in ceiling panels with like materials up to 25% of a room or space and a maximum of 500 square feet;

16. Nonfixed or moveable fixtures, cases, racks, counters and partitions not over 5 feet, nine inches in height;

17. Foundation and floor slab repair such as patching/filling of cracks of up to ¼ inch in walls and ⅜ inch in slabs, waterproofing, etc., provided the building is otherwise structurally sound and plumb.

Additionally, for 1- and 2-family dwellings and multiple-family properties with no more than four units, permits shall not be required for the following:

18. Swings and other backyard playground equipment including basketball goals and standards;

19. New aluminum, steel, fiber cement, hardboard, or vinyl exterior siding with no change to existing openings. Replacement of 25% or less of the wall sheathing;

20. Application of pre-finished aluminum, steel, vinyl, or like materials on soffits, fascia boards, rake boards, or overhangs;

21. Replacement or repair of exterior or interior doors or frames, provided the fire rating, when applicable, is maintained, and no modification is made to the opening;

22. Replacement or repair of existing windows and frames, whenever no modification is made to the opening; installation of storm windows and doors, whenever no modification is made to the opening; glazing and glass replacement;

23. Awnings which do not project over property lines, and not over 40 square feet in projected area;

24. Exterior ramps, stairs, or steps which are on grade and not more than twelve inches above adjacent grade, not attached to the structure, and within property lines;

25. Sidewalks and driveways within property lines; paved areas on the same lot as the primary structure, without roofs, covers, or enclosures; concrete patio slabs or wooden patios/decks which rest directly on the ground or a rock base, provided that they are not covered by a roof or canopy, not supported by any type of permanent foundation, and a maximum of twelve inches above adjacent grade;

26. Small detached accessory buildings, such as utility/storage/tool sheds, cabanas, play houses, etc., 120 square feet in area or less and less than twelve feet in height, provided the utility shed is placed on and anchored to a minimum four-inch-thick concrete slab and maintains the setbacks required by the Zoning Ordinance. This does not include accessory buildings having unique uses such as barbeque or smoke houses, storage of fuel or other hazardous material, structures containing fuel fired equipment, and other uses that present an increased fire hazard or nuisance to adjoining property. A permit is required for all buildings housing these types of uses exceeding 50 square feet in area;

27. Residential accessory structures such as arbors, garden trellises, or other minor structures, provided such structures maintain the setbacks required by the Zoning Ordinance;

28. Non-dish radio or television antennae twelve feet or less in height, mounted on the ground, not in the front yard area, attached to, or on the roof of a building. Dish antennas two feet in diameter or less installed on grade or on the roof, provided such antennae maintain the setbacks required by the Zoning Ordinance;

29. Above-ground swimming pools, or hot tubs or spas placed on a slab. Also, in-ground swimming pools with less than 24 inches water depth with a surface area of less than 250 square feet. All pools, hot tubs, and spas shall maintain the setbacks required by the Zoning Ordinance;

30. Installation of battery-operated smoke detectors.

Exceptions:

1. Work involving repair of flood, earthquake, or other natural disaster damage.

2. A floodplain development permit is still required to be obtained if the site is located in the floodplain areas defined by FEMA.

3. Ordinary repairs or minor work to buildings and structures which fall under the purview of the Cultural Resource Office requiring "Cultural Resource Office Only" permits.

R105.2.1 Emergency Repairs. Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day to the building official.

R105.2.2 Repairs. Application or notice to the building official is not required for ordinary repairs to structures, replacement of lamps, or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition, or portion thereof; the removal or cutting of any structural beam or load bearing support; or the removal or change of any required means of egress or rearrangement of parts of a structure affecting the egress requirements. Ordinary repairs also shall not include addition to or alteration, replacement, or relocation of any water supply, sewer, drainage, drain leader, gas, soil, waste, vent, or similar piping; electric wiring; or mechanical or other work affecting public health or general safety.

R105.2.3 Public Service Agencies. A permit shall not be required for the installation, alteration, or repair of generation, transmission, distribution, metering, or other related equipment that is under the ownership and control of public service agencies by established right.

R105.2.4 Damaged Building Repair. Buildings that are determined by the building official to have sustained light building damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction drawings showing the scope of work and a report prepared, sealed, signed, and dated by a Missouri licensed design professional stating that the building damage is light with no structural damage. Construction drawings may be prepared by a person who is not a Missouri licensed design professional.

Buildings that are determined by the building official to have sustained moderate or serious building damage or structural damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction documents prepared, sealed, signed, and dated by a Missouri licensed design professional.

R105.2.4.1 Condemned for Occupancy or Condemned for Demolition Building Repair. Repairs to buildings that are determined by the building official to be condemned for occupancy or condemned for demolition shall require a building permit with construction documents prepared, sealed, and signed by a Missouri licensed design professional.

R105.2.5 Maintenance. All buildings, structures, and premises and all parts thereof, both existing and new, shall be maintained in a safe and sanitary condition. All service equipment, means of egress, devices, and safeguards required by this code or a previous code or ordinance at the time a building or structure was erected, altered, or repaired shall be maintained in good working order.

R105.2.6 Owner Responsibility. The owner(s) or the owner's agent shall be responsible for the safe and sanitary maintenance of the building, structure or premises and its means of egress facilities at all times.

R105.3 By Whom Application Is Made. Application for a permit shall be made by the owner or lessee of the building or structure, or agent of either, or by the Missouri licensed design professional employed in connection with the proposed work. The full names, addresses, and telephone numbers of the owner, lessee, and applicant shall be stated in the application. Every application shall have a local contact person listed. Demolition and occupancy permit applications, when applied for by anyone other than the owner of record, shall be accompanied by a notarized letter of authorization or other documentation from the owner of record granting permission to apply.

R105.3.1 Application for Permit. To obtain a permit, the applicant shall first file an application on a form furnished by the Division of Building and Inspection for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.

2. Describe the land on which the proposed work is to be done by legal description, street address, or similar description that will readily identify and definitely locate the proposed building or work.

3. Indicate the use and occupancy for which the proposed work is intended.

4. Be accompanied by construction documents and other information as required in Section R107.

5. State the estimated cost of construction of the proposed work.

6. Be signed by the applicant, or the applicant's authorized agent.

7. Give such other data and information as required by the building official.

R105.3.2 Action on Application. The building official shall examine or cause to be examined applications for permits and amendments thereto. If the application or the construction documents do not conform to the requirements of all pertinent laws, the building official shall reject such application in writing, stating the reasons therefor. If the building official is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the building official shall issue a permit. The building official shall rely upon other City agencies to review for compliance with their ordinance requirements.

R105.3.2.1 Determination of Substantially Improved or Substantially Damaged Existing Buildings in Flood Hazard Areas. For applications for reconstruction, rehabilitation, addition, alteration, repair, or other improvement of existing buildings or structures located in a flood hazard area, the building official shall examine the construction documents and shall make a determination of the value of the proposed work. For buildings that have sustained damage of any origin, the value of the proposed work shall include the cost to repair the building or structure to its pre-damaged condition. If the building official finds that the value of the proposed work is 50% or more of the market value of the building or structure before the damage has occurred or the improvement is started, the proposed work shall be considered a substantial improvement or restoration of substantial damage and the building official shall require existing portions of the entire building or structure to meet the requirements of this code.

Where the building or structure has sustained substantial damage, repairs necessary to restore the building or structure to its pre-damaged condition shall be considered substantial improvements regardless of the actual repair work performed. The term shall not include either of the following:

1. Improvements to a building or structure that are required to correct existing health, sanitary, or safety code violations identified by the building official and that are the minimum necessary to ensure safe living conditions.

2. Any alteration of an historic building or structure provided that the alteration will not preclude the continued designation as an historic building or structure.

2.1 Listed or preliminarily determined to be eligible for listing in the National Register of Historic Places; or

2.2 Determined by the Secretary of the U.S. Department of Interiors as contributing to the historical significance of a registered historic district or a district preliminarily determined to qualify as an historic district; or

2.3 Designated as historic under a state or local historic preservation program that is approved by the Department of the Interior.

R105.3.3 Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned six months after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except that the building official is authorized to grant one or more extensions of time for additional periods not exceeding 90 days each if the building official deems that there is reasonable cause and if a written request is received from the applicant for the extension prior to the expiration date.

R105.3.4 Time Limitation on Approval. When an application for a permit has been approved by the building official and a permit has not been issued, the application shall be deemed to have been abandoned three months after the approval date. A notice of abandonment shall be sent to the applicant of record at least two weeks prior to the abandonment of the application.

Applicants who have a record of abandoned permit applications shall be required on all future permits to pay the application fee and the full permit fee upon application until such time as the abandoned permits have been reapplied for and approved and all applicable fees have been paid.

R105.3.5 Action on Application for Permit to use explosives. When it is deemed proper, safe and advisable, the building official shall, upon receipt of application, issue permits for the use of explosives for blasting in connection with demolition, excavation, construction or other building operations. Without such

permit, the use of explosives for the above-mentioned purposes is hereby prohibited. Additional permits shall be required under the Fire Code.

R105.3.6 Information on the Permit. The building official shall issue all permits required by this code on an approved form furnished for that purpose. The permit shall contain a general description of the operation or occupancy and its location and any other information required by the building official. Issued permits shall bear the signature of the building official or other approved legal authorization.

R105.4 Validity of Permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this code or of any other ordinance of the City of Saint Louis. Permits presuming to give authority to violate or cancel the provisions of this code or other ordinances shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is also authorized to prevent occupancy or use of a structure where in violation of this code or any other ordinance of the City of Saint Louis.

R105.5 Expiration. All permits shall be issued in the name of the property owner of record for a period of six months unless noted otherwise. Permits shall be permitted to be extended for additional six-month periods if work is progressing and a written request from the owner for the extension is received by the building official prior to the expiration of each permit. Any permit issued shall become invalid if the authorized work is not commenced within six months after issuance of the permit, or if the authorized work is suspended or abandoned for a period of six months after the time of commencing the work; except that the building official shall be permitted to grant one or more extensions of time for additional periods not exceeding six months each if the building official deems that there is reasonable cause, and if a written request is received from the owner for the extension prior to the expiration date. No permit shall be extended if, after six months from issuance of said permit, no work has begun and the Board of Aldermen has passed an ordinance that would make all or part of the work thereon illegal or unlawful.

Permits shall also be abandoned upon written request from the property owner of record, or if circumstances require, the Missouri licensed design professional.

Exception: Permits for demolition of buildings or structures or repair of buildings or structures condemned in accordance with either Section R119 or Section R120 and other work specifically identified by the building official, when in the best interests of the public, shall become invalid after 30 days unless otherwise approved. The building official shall be permitted to grant one or more extensions of time for additional periods not exceeding 30 days each after receiving a written request from the owner explaining the reasons for failing to commence or for suspending work.

R105.6 Suspension or Revocation. The building official is authorized to suspend or revoke a permit issued under the provisions of this code whenever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this code.

R105.6.1 Revocation of Permits. The building official shall be permitted to revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or construction documents on which the permit or approval was based. The building official shall be permitted to revoke or suspend a permit upon discovery of substantial noncompliance with this code or any applicable City ordinance. Permits shall be revoked for non-payment of fees.

R105.6.2 Revocation of Permits for Repeat Offenders. The building official shall revoke any permit or certificate associated with a building, structure or premises when an owner(s) is convicted by a court of competent jurisdiction twice within a twelve-month period of being in violation of the same code provision on the same building, structure or premises.

R105.7 Placement of Permit. A true copy of the building permit shall be kept on the site of operations, open to inspection during the entire time of prosecution of the work and until the completion of the same.

R105.8 Responsibility. It shall be the duty of every person who performs work for the installation or repair of building, structure, electrical, gas, mechanical, or plumbing systems, for which this code is applicable, to comply with this code.

R105.9 Notice of Start. At least 24 hours' notice of start of work under a building permit shall be given to the building official.

R105.10 Compliance with Permit. All work shall conform to the approved application and the approved construction documents for which the permit has been issued and any approved amendments to the approved application or the approved construction documents. Any addition to or alteration of approved construction documents shall be approved in advance by the building official, as evidenced by the issuance of a new or amended permit.

SECTION R106 FLOOR AND ROOF DESIGN LOADS

R106.1 Live Loads Posted. Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed 50 pounds per square foot, such design live loads shall be conspicuously posted by the owner in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

R106.2 Issuance of Certificate of Occupancy. A certificate of occupancy required by Section 111 shall not be issued until the floor load signs required by Section 106.1 have been installed.

R106.3 Restrictions on Loading. It shall be unlawful to place or cause or permit to be placed on any floor or roof of a building, structure, or portion thereof a load greater than is permitted by this code.

SECTION R107 CONSTRUCTION DOCUMENTS

R107.1 Submittal Documents. The application for the permit shall be accompanied by at least five complete sets of construction drawings, one set of project specifications, one set of structural calculations, one set of the geotechnical (soils) report, and one set of site or building photographs with sufficient clarity and detailed dimensions to show the nature and character of the work to be performed. The minimum size of any sheet shall be 8½" x 11" and the maximum size of any sheet shall be 36" x 48". When quality of materials is essential for conformity to this code, specific information shall be given to establish such quality. This code shall not be cited nor the term "legal" or its equivalent be used as a substitute for specific information. Construction documents containing the words "not for construction," "preliminary," "review set," or their equivalent shall not be accepted for application. Construction documents marked with contractors' "take-off" notations shall not be accepted for application.

If the construction documents for single-family or multiple-family dwelling units are prepared by a Missouri licensed architect, that architect must seal, sign and date the construction documents as required by RSMo Ch. 327.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a licensed design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

R107.1.1 Seals. All construction documents submitted with an application for a building permit shall be prepared by a Missouri licensed design professional as required by RSMo Ch. 327. All construction documents shall bear an original embossed or wet ink seal, original ink signature, and the date the documents were sealed by the Missouri licensed design professional for each discipline on the cover sheet of each set of construction documents or on the first sheet of each discipline's drawings within each set of construction documents.

In addition, all other sheets of the construction documents other than project specifications or calculations shall bear the original embossed, wet ink, electronic, or mechanically reproduced seal, signature, and date of the Missouri licensed design professional. Any addenda or modifications submitted for changes to the construction documents shall also bear the original embossed or wet ink seal, original ink signature, and date the documents were sealed.

All project specifications, calculations, reports, or other documents not considered to be construction drawings shall bear an original wet ink or embossed seal, original ink signature, and the date the documents were signed by the Missouri licensed design professional for each discipline on the title or index sheet.

A Missouri licensed professional engineer cannot render architectural services or seal, sign and date construction documents for any residential project. This could be interpreted as the unlawful practice of architecture by a Missouri licensed professional engineer. A Missouri licensed professional engineer may prepare seal, sign and date architectural work which is incidental (insignificant, minor, etc.) to the engineering work

(and vice versa). This determination shall be made on a case by case basis depending upon the full scope of the project.

Exceptions:

1. Construction documents for one- or two-family dwellings not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

2. Construction documents for non-structural alterations to multiple-family dwellings with not more than four dwelling units not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

3. Construction documents for owner-occupied one- or two-family dwellings prepared by the owner.

R107.2 Construction Documents. Construction documents shall be in accordance with Sections R107.2.1 through R107.2.10.

R107.2.1 Information on Construction Documents. Construction documents shall be drawn and dimensioned upon suitable material. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed and show in detail that it will conform to the provisions of this code and relevant laws, ordinances, rules, and regulations as determined by the building official.

R107.2.2 Fire protection Construction Drawings. Construction drawings for the fire protection system(s) shall be submitted to show conformance with this code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9 of the Building Code.

R107.2.3 Means of Egress. The construction documents shall show in sufficient detail the location, construction, size, and character of all portions of the means of egress in compliance with the provisions of this code.

R107.2.4 Exterior Wall Envelope. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this code. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves, or parapets, means of drainage, water-resistive membrane, and details around openings.

The construction drawings shall include manufacturing installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system which was tested, where applicable, as well as the test procedure used.

R107.2.5 Site Plan. The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades, and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirements for a site plan when the application for permit is for alteration or repair or when otherwise warranted.

R107.2.5.1 Change in Site Plan. A lot shall not be changed, increased, or diminished in area from that shown on the official site plan until a revised site plan is resubmitted showing such changes accompanied by proof that the documents have been filed in the Recorder of Deeds Office and approved under the Zoning Ordinance; except that such revised site plan will not be required if the change is caused by reason of an official street or alley opening, street widening, or other public improvement.

R107.2.6 Structural Information. For other than one- and two-family dwellings or existing multiple-family dwellings with no more than four units, the construction documents shall provide the information specified in Section 1603 of the Building Code.

R107.2.7 Manufacturer's Installation Instructions. Manufacturer's installation instructions, as required by this code, shall be available on the job site at the time of inspection.

R107.2.8 Information of Braced Wall Design. For buildings and structures utilizing braced wall design, and where required by the building official, braced wall

lines shall be identified on the construction documents. Pertinent information, including, but not limited to, bracing methods, location and length of braced wall panels, and foundation requirements of braced wall panels at top and bottom shall be provided.

R107.2.9 Information for Construction in Flood Hazard Areas. For buildings and structures located in whole or in part in flood hazard areas, construction documents shall include:

1. Delineation of flood hazard areas, floodway boundaries, and flood zones, and the design flood elevation, as appropriate;

2. The elevation of the proposed lowest floor, including basement; in areas of shallow flooding (AO zones), the height of the proposed lowest floor, including basement, above the highest adjacent grade;

3. The elevation of the bottom of the lowest horizontal structural member in coastal high hazard areas (V zone); and

4. If design flood elevations are not included on the community's Flood Insurance Rate Map (FIRM), the building official and the applicant shall obtain and reasonably utilize any design flood elevation and floodway data available from other sources.

R.107.2.10 Information for electric vehicle charging stations. Construction documents shall include electric vehicle charging stations with system installation requirements set forth in Section 309.6 and the Electrical Code.

R107.3 Examination of Documents. The building official shall examine or cause to be examined the construction documents for code compliance.

R107.3.1 Approval of Construction Documents. The building official shall stamp three sets of construction documents "APPROVED," and at least one set of such approved construction documents shall be retained by the building official and one set shall be kept at the building site, open to the inspection of the building official or an authorized representative at all reasonable times. If additional "APPROVED" sets are required by the applicant, a charge shall be made as listed in Table 109.3.1.

R107.3.2 Previous Approvals. This code shall not require changes in the construction documents, construction or designated occupancy of a building or structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been actively prosecuted in good faith within 180 days after the effective date of this chapter and has not been abandoned. When the codes adopted by the City of Saint Louis change from one edition to another, the work shall be permitted to be completed under the codes in effect when the permit for said work was originally issued.

R107.3.2.1 Code Transition. Unless requirements imposed by federal law or state statute have changed, permits applied for within six months of the effective date of this chapter shall be permitted to be reviewed and approved under the former code if there is written evidence of a preliminary plan exam review of the project under the former code. The cover sheet of the construction documents shall show under which code the project was designed.

R107.3.3 Phased Approval. The building official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this code. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure will be granted.

R107.3.4 Design Professional in Responsible Charge. When it is determined that documents be prepared by a Missouri licensed design professional, the building official shall be authorized to require the owner or the owner's authorized agent to engage and designate on the building permit application a Missouri licensed design professional who shall act as the Missouri licensed design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute Missouri licensed design professional in responsible charge who shall perform the duties required of the original Missouri licensed design professional in responsible charge. The building official shall be notified in writing by the owner or the owner's authorized agent if the Missouri licensed design professional in responsible charge is changed or is unable to continue to perform the duties.

The Missouri licensed design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

Where structural observation is required by Section 1710 of the Building Code, the inspection program shall name the individual or firms who are to perform structural observation and describe the stages of construction at which structural observation is to occur. See also duties specified in Section 1704 of the Building Code.

R107.3.4.1 Deferred Submittals. For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the building official within a specified period.

Deferral of any submittal items shall have the prior approval of the building official. The Missouri licensed design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

The Missouri licensed design professional in responsible charge shall review the deferred submittal items and forward them to the building official with a notation indicating that they have been reviewed and found to be in general conformance with the design of the building. The deferred submittal items shall not be installed until their design and submittal documents have been approved by the building official.

R107.3.4.2 Engineering Details. The building official shall require to be filed adequate details of structural, plumbing, mechanical, and electrical work including computations, loadings, and structural analysis and other essential technical data. All construction documents shall bear an original embossed or wet ink seal, original ink signature and the date the documents were sealed by the Missouri licensed design professional responsible for the design as required by state statute. Such calculations shall be permitted to be accepted by the building official as complying with the conditions of this code without the need to verify the calculations or their engineering analysis.

R107.4 Amended Construction Documents. Work shall be installed in accordance with the approved construction documents. Any changes to the approved scope of work shall be submitted for approval as an addendum to the approved construction documents.

SECTION R108 TEMPORARY STRUCTURES AND USES

R108.1 General. The building official is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service, but shall not be permitted for more than 180 days. The building official is authorized to grant extensions for demonstrated cause.

R108.2 Conformance. Temporary construction and uses shall conform to the structural strength, fire safety, means of egress, light, ventilation, and sanitary requirements of this code as necessary to ensure the public health, safety, and general welfare.

R108.3 Temporary Power. The building official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in the Electrical Code.

R108.4 Termination of Approval. The building official is hereby authorized to terminate such permit for a temporary structure or use and to order the temporary structure or use to be discontinued.

SECTION R109 FEES

R109.1 General. No permit, certificate, or inspection report required by the provisions of this code shall be released or issued until the fees listed in this section have been paid to the City of Saint Louis; nor shall an amendment to a permit be released until the additional fees have been paid. In collecting said fees, the building official is authorized to accept personal checks as payment; however, non-payment by said checking account shall be considered as a violation of this code and is cause for suspension or revocation of permits, certificates, or reports issued or released for such personal check payment. If a permit is suspended or revoked for non-payment of a fee or for insufficient funds, an additional $25.00 shall be collected to cover administrative costs.

R109.1.1 Fees Other Than Herein Prescribed. The payment of fees listed in this section shall not relieve the applicant or holder of any permit or any certificate of occupancy from the payment of other fees which shall be prescribed by law or ordinance for water taps, sewer connections, plumbing permits, mechanical permits, electrical permits, sprinkler permits, fire alarm permits, or fees for inspections or other privileges or requirements, both within and without the jurisdiction of the Division of Building and Inspection.

R109.2 Schedule of Permit Fees. Fees for permits for construction shall be as established as follows:

R109.2.1 Application Fee. An application fee is an administrative charge made for processing permit ap-

plications, preparing a Certificate of Floodplain Status, or conducting a Building Line Survey and shall be as listed in Table R109.3.1.

R109.2.2 New Construction and Additions. The building permit fee for new construction and additions will be based on the total estimated cost of construction, and shall be charged at the rate listed in Table R109.3.1 for new construction and additions. For the purpose of determining a fee, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe, and fire alarm systems; and signs.

R109.2.3 Miscellaneous Structures and Site Work. The fee for a permit for, including, but not limited to, retaining walls, fences and site-work (including parking lots) shall be based on the estimated total cost of the construction at the rate listed in Table R109.3.1.

R109.2.4 Alterations and Repairs. The fee for a permit for alterations or repairs to a building or structure shall be based on the estimated total cost of said alterations or repairs and shall be charged at the rate listed in Table R109.3.1.

R109.2.5 Tanks, Devices, Etc. The fee for a permit for the installation of a tank, device, equipment, or other structure or facility shall be as listed in Table R109.3.1.

R109.2.6 Tents, Amusement Booths. The fee for a permit for the construction, installation, or erection of a tent or amusement booth shall be as listed in Table R109.3.1. This shall include all those for private parties, picnics, carnivals, circuses, or traveling exhibitions.

R109.2.7 Moving of Buildings. The fee for a permit to move a building or structure from one lot to another, or to a new location on the same lot, shall be as listed in Table R109.3.1. In the event that a building or structure is to be moved from a point within the City of Saint Louis to a point outside the City, the fee for the moving permit shall be based on the estimated total cost of restoration of the original site to a safe and satisfactory condition plus that portion of the moving cost which covers the journey to the City limits. In the event that a building or structure is to be moved from the outside of the City of Saint Louis to a point inside the City limits, the fee for the moving permit shall be based on the estimated total cost of the portion of the journey from the City limits to the site of re-erection.

R109.2.7.1 New Foundations. Before any building or structure is moved to a new foundation, a separate building permit shall be obtained for the construction of said new foundation; the fee for the permit for said foundation shall be as listed in Table R109.3.1. In addition, all additional electrical, mechanical, and plumbing permits shall be obtained.

R109.2.8 Explosives. The fee for a permit for the use of explosives for blasting in connection with demolition, excavation, construction, or other building operations shall be as listed in Table R109.3.1. When a blasting operation consists of a series of blasts at intervals of distance, such as blasting a trench for the installation of utilities, and the extent of the blasting operations exceeds 250 feet in length, the fee for a permit shall be charged for the first 250 feet of the operation with an additional fee for each additional 250 feet or any portion thereof. The fee for a permit for the use of explosives shall cover the issuance of the permit and shall also cover pre-blasting survey inspection and post-blasting survey inspection of all property within 250 feet of the blasting operation. In addition, a separate permit shall be required under the Fire Code for the transportation, storage, or use of explosives.

R109.2.9 Addendum to Permit. Fees for addendums to issued permits shall be as follows:

1. Where an addendum includes work that will increase the construction cost of the complete project, the fee listed in Table R109.3.1 shall be calculated on the additional cost incurred by the change in scope, and shall include application, special demolition fund, and lead remediation fees.

2. Where an addendum does not include work that will increase the construction cost of the complete project, or includes work or removal of work that decreases the cost of the complete project, a minimum fee as listed in Table R109.3.1 and an application fee shall apply.

R109.2.10 Special Demolition Fund. There shall be an additional fee charged on all building permits based on the total estimated cost of construction, and shall be charged at the rate listed in Table R109.3.1 for the special demolition fund.

R109.2.11 Lead Remediation Fund. There shall be an additional fee charged on all building permits based

on the total estimated cost of construction, and shall be charged at the rate listed in Table R109.3.1 for the special lead remediation fund.

R109.2.12 Vacant Building Registration Fee. A semiannual registration fee of $200.00 shall be charged to the owner of any parcel of residential property improved by a residential structure, or commercial property improved by a structure containing multiple dwelling units, which is vacant and has been vacant for at least six months, and which is violation of this code.

R109.2.13 Fee for Duplicate Copy. Any person requesting a copy of a building permit, occupancy permit, or certificate of inspection issued under this code, or the holder of any permit for similar purpose issued by the building official under any previous code or ordinance, can obtain a duplicate or re-issued copy of said permit for a fee of one dollar per copy. This fee is listed in Table R109.3.1.

R109.2.14 Fee for Occupancy Permit. Fees for the issuance of an occupancy permit shall be as listed in Table R109.3.1. There shall be no charge for the issuance of the original occupancy permit upon completion of construction in accordance with the building permit for new buildings or buildings hereafter altered with construction costs exceeding $30,000.00.

R109.2.14.1 Fee for Temporary or Partial Occupancy Permit. The fee for a partial occupancy permit shall be as listed in Table R109.3.1.

R109.2.14.2 Fee for Changing the Name on an Occupancy Permit. Any person requesting a re-issuance of an occupancy permit issued under this code or under any previous code or ordinance due to a change of name can obtain a re-issued copy of said permit for a fee of five dollars per copy. This fee is listed in Table R109.3.1.

R109.2.15 Fee for Approving Additional Sets of Construction Documents. Any person requesting additional sets of approved construction documents issued under this code or under any previous code or ordinance shall be charged a fee of one dollar per page. This fee is listed in Table R109.3.1.

R109.3 Fee Tables. The building official shall cause to be collected all fees as listed in Table R109.3.1 and elsewhere in this code.

R109.3.1 Fee Schedule. Table R109.3.1 contains fees for permits for new construction and additions; miscellaneous structures; alterations and repairs to existing buildings; tanks; moving of buildings; demolition of structures; blasting for demolition or construction purposes; picnics, carnivals, and circuses or traveling exhibitions; tents; amusement park devices; addendums to permit; the special demolition and lead remediation funds; special inspections; and occupancy.

R109.3.2 Building Permit Valuations. The applicant for a building permit shall provide a total estimated cost of construction for the project at the time of application. For the purpose of determining fees, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe and fire alarm systems; and signs.

If, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed construction estimates for the project to meet the approval of the building official. The building official shall be permitted to require the submittal of signed and notarized construction contracts when the total estimated cost of construction is questioned. Final building permit valuation shall be set by the building official.

Final costs shall be determined by the building official, if necessary, by multiplying the total floor area of the project in square feet by an appropriate square foot cost rate, or by using the current ICC Building Valuation Data Report for New Construction, Additions, Alterations, Repairs, or Rehabilitation.

Table R109.3.1

BUILDING PERMIT FEES FOR STRUCTURES; BLASTING AND INSPECTIONS FEES

Item	Fee	Minimum Fee	Section	Remarks and Requirements
APPLICATION FEE; or Building Line Survey	$25.00		R109.2.1	An administrative charge made for processing applications.

Item	Fee	Minimum Fee	Section	Remarks and Requirements
Certificate of Floodplain Status	$10.00		R109.2.1	
PERMIT FOR NEW CONSTRUCTION AND ADDITIONS	$6.00/$1000 of estimated cost or fraction thereof	$15.00	R109.2.2	
MISCELLANEOUS STRUCTURES PERMIT - Structures such as towers, retaining walls, floating structures, parking lots, fences, awnings, signs, etc.	$6.00/$1000 of estimated cost or fraction thereof	$15.00	R109.2.3	For all structures, devices, appurtenances, and equipment requiring permits & not otherwise provided for by this code.
PERMIT FOR ALTERATIONS & REPAIRS TO AN EXISTING BUILDING	$6.00/$1000 of estimated cost or fraction thereof	$15.00	R109.2.4	Permits for flammable and combustible liquids are required under the Fire Code.
TANK PERMIT For any purpose except flammable and combustible liquids	$6.00/$1000 of estimated cost or fraction thereof	$15.00	R109.2.5	
TENT PERMIT	$35.00		R109.2.6	Section 3103 of the Fire Code.
MOVING OF BUILDING PERMIT Within City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00	R109.2.7	Estimated cost of moving building to new location plus cost of restoring previous site to a safe condition.
To outside City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building to City limits plus cost of restoring previous site to a safe condition.
From outside City Limits to within City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building from City Limits to a new site.
Foundation for building	$6.00/$1000 of estimated cost or fraction thereof	$15.00	R109.2.7.1	
EXPLOSIVES PERMIT Blasting permit for trenching	$6.00/250 lineal feet or fraction thereof	$100.00	R109.2.8	For construction, excavation, or other building operation.
Blasting for demolition	$100.00	$100.00	R109.2.8	Includes pre- and post-blast survey per building/per blast.
ADDENDUM PERMIT Amendment which involves additional dollars in project cost.	$6.00/$1000 of estimated increased cost or fraction thereof	$25.00	R109.2.9	
Amendment which involves decrease or no increase in project cost.	$25.00	$25.00		
SPECIAL DEMOLITION FUND	$2.00/$1,000 of estimated cost or fraction thereof		R109.2.10	Special fund approved by the voters.
LEAD REMEDIATION FUND	$2.00/$1,000 of estimated cost or fraction thereof		R109.2.11	Special fund approved by Ordinance 64699.
VACANT BUILDING REGISTRATION FEE	$200.00 Semi-annually		R109.2.12	Special fee established by Ordinance 64678.
DUPLICATE COPY OF BUILDING PERMIT, OCCUPANCY PERMIT OR CERTIFICATE OF INSPECTION	$1.00 per copy		R109.2.13	
APPLICANT REQUEST FOR OCCUPANCY PERMIT Residential	$80.00		R109.2.14 R109.2.14.1	Special inspection fees for occupancy permits. This fee is also applicable to partial occupancy permits.
	$20.00/each additional unit in same structure			When units are inspected on the same site inspection.
Commercial 3,500 sq. ft. or less	$80.00			
Commercial over 3,500 sq. ft.	$160.00			
RE-ISSUANCE OF OCCUPANCY PERMIT DUE TO NAME CHANGE	$5.00 per copy		R109.2.14.2	

Item	Fee	Minimum Fee	Section	Remarks and Requirements
APPROVAL OF ADDITIONAL SETS OF CONSTRUCTION DOCUMENTS	$1.00 per page		R109.2.15	
DEMOLITION PERMITS - Structure volume less than 10,000 cu. ft.	$10.00	$10.00	R123.1.5	Based on volume of structure exclusive of basement or cellars.
10,000 cu. ft. and over	$15.00/10,00 0 cu. ft. or fraction thereof	$25.00		Demolition permits shall be issued for a period not to exceed thirty days.
DEMOLITION INSPECTION FEE				
Less than 10,000 cu. ft.	$15.00	$15.00	R123.1.5	Per site
10,000 cu. ft. or over	$25.00	$25.00		Per site
Blasting for demolition	$50.00	$50.00	R109.2.8	Per site
Applicant request	$25.00			Related to other occupancy and use permits requested by the applicant.
Emergency and specialty inspection	$25.00			Charge for inspection requested to be made beyond normal working hours - not to exceed $25.00 per requested inspection.

R109.3.3 Sign Fee Schedule. Table R109.3.3 contains the basic building fees for signs governed by this code.

Table R109.3.3(a)

SIGN PERMIT FEES

Item	Fee	Minimum Fee	Section
GROUND SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
ROOF SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
WALL SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
PROJECTING SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
SPECIAL OR TEMPORARY DISPLAY SIGNS REQUIRING PERMITS Fees for a special sign shall be the same as the one above which it most closely resembles.		$100.00	IBC H101.3.1
LETTERING OR GRAPHICS ON AWNINGS AND CANOPIES	$50.00	$50.00	
Note a. When a question arises as to what type of sign is being constructed or placed, it shall be designated as that type of sign it most closely resembles as determined by the building official. (See also Chapter 29 of the Building Code and the Zoning Ordinance.)			

R109.4 Work Started Surcharge Fees Schedule. In case any work for which a permit is required by this code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.4. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table R109.4

SCHEDULE FOR SURCHARGE BUILDING PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

R109.5 Demolition Work Started Surcharge Fees Schedule. In case any work for which a demolition permit is required by the code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table R109.5. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table R109.5

SCHEDULE FOR SURCHARGE DEMOLITION PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

R109.6 Related Fees. The payment of fees for the construction, alteration, removal or demolition for work done in connection with or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

R109.7 Fees Non-Refundable. The fee for a permit based upon an estimated cost that is higher than later claimed by the applicant shall not be a basis for refund. When construction does not occur, or only partially occurs, fees collected are not refundable.

R109.8 Fees Waived for Disaster Related Permits. In the event of a tornado, earthquake, flood, or any other disaster of such magnitude to activate the City Emergency Management Agency, the Building Commissioner is authorized to waive all permit fees normally collected by the Division of Building and Inspection for repairs, reconstruction, demolition, plumbing, mechanical, or electrical work or any other similar permits required by this Division to correct the damage caused by such disaster. These permit fees shall be permitted to be waived for a period not to exceed six months or as otherwise determined by the Building Commissioner.

SECTION R110 INSPECTIONS

R110.1 General. Construction or work for which a permit is required shall be subject to inspection by the building official and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the City of Saint Louis. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the City of Saint Louis shall be liable for expenses entailed in the removal or replacement of any material required to allow inspection.

R110.2 Preliminary Inspection. Before issuing a permit, the building official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

R110.2.1 Notice to Begin Work. It shall be the responsibility of the holder of a permit to notify the building official when work is ready for the various inspections required by the terms of the permit or the approved rules. Such notice shall be given within a reasonable time before the inspection is desired, but in no event shall the notice be less than the working day before. Notice given on a Friday or on a day prior to a legal holiday shall not constitute notice for inspection on a Saturday, Sunday, or holiday unless arrangements have been made under approved rules for overtime inspection on such days. Before giving such notice the holder of the permit shall first test the work and satisfy themselves that it conforms to the approved construction documents and the requirements of this code.

R110.3 Required Inspections. The building official, upon notification, shall make the inspections set forth in Sections R110.3.1 through R110.3.10. No work shall be done on any part of the building or structure

beyond the point indicated in each successive inspection without first obtaining the approval of the building official or authorized representative. Approval shall be given only after an inspection has been requested and made of each successive step in the construction phase and all code requirements or corrections are completed as indicated by each of the inspections required. A final inspection and approval of all buildings shall be completed before occupancy as described in Section R111. Failure to obtain a final inspection before occupancy will constitute a violation of the Building Code subject to the penalties as set forth in Section 25.11.030. Reinforcing steel or structural framework of any part of a building or structure shall not be covered or concealed in any manner without first obtaining the approval of the building official. The building official, upon notification from a permit holder or agent, in accordance with the rules of procedure listed on the permit and posted in the office of the building official, shall make the following inspections and shall either approve that section or portion of the construction as completed or shall notify the permit holder or agent that they have failed to comply with the law.

R110.3.1 Footing or Foundation Inspection. Footing and foundation inspections shall be made after excavation for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job. The owner is solely responsible for the correct location of the foundation on the site.

R110.3.1.1 Soil Inspection. A soil inspection shall be made after excavation for the building or structure is complete and trenches for footings, column pads, spread footings, or other types of footings are ready for concrete. No concrete shall be poured prior to this inspection.

R110.3.1.2 Pier Inspection. Where special foundations such as drilled and poured-in-place concrete piers, driven piles of all types, caissons, and other extraordinary types are required, the building official shall make at least one inspection or more if the size of the job warrants it.

R110.3.2 Concrete Slab or Under-Floor Inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories, and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

R110.3.3 Lowest Floor Elevation. In flood hazard areas, upon placement of the lowest floor, including basement, and prior to further vertical construction, the elevation certificate required in Section 1612.5 of the Building Code shall be submitted to the building official.

R110.3.4 Frame Inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking, and bracing are in place and pipes, chimneys, and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes, and ducts are approved.

R110.3.5 Lath, Gypsum Board, and Gypsum Panel Product Inspection. Lath, gypsum board, and gypsum panel product inspections shall be made after lathing, gypsum board, and gypsum panel products, interior and exterior, are in place, but before any plastering is applied or gypsum board or gypsum panel product joints and fasteners are taped and finished.

Exception: Gypsum board and gypsum panel products that are not part of a fire-resistance-rated assembly or a shear assembly.

R110.3.5.1 Covering Work. It shall be a violation of this code to cover prior to inspection any work required to be inspected under the provisions of a permit, the approved rules, or this code, regardless of any penalties for such violation. The building official shall be permitted to require the holder of the permit to uncover any such work for inspection, and the cost of uncovering such work and of replacing the cover after the work has been satisfactorily inspected, shall be borne by the holder of the permit.

R110.3.6 Fire- and Smoke-Resistant Penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers, and smoke partitions shall not be concealed from view until inspected and approved.

R110.3.7 Energy Efficiency Inspections. Inspections shall be made to determine compliance with Chapter 13 of the Building Code or Chapter R11 of the Residential Code for One- and Two-family Dwellings, as applicable, and shall include, but not be limited to, inspections for: envelope insulation R and U value, fenestration U value, duct system R value, and HVAC and water heating equipment efficiency.

R110.3.8 Other Inspections. In addition to the inspections specified above, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this code and other laws that are enforced by the Division of Building and Inspection.

R110.3.8.1 Plant Inspection. Where required by the provisions of this code or by the approved rules, materials or assemblies shall be inspected at the point of manufacture or fabrication.

R110.3.8.2 Evaluation and Follow-Up Services. Prior to the approval of a closed prefabricated assembly and issuance of a building permit, the building official shall require the submittal of an evaluation report of each prefabricated assembly indicating the complete details of the assembly including a description of the assembly and its components, the basis upon which the assembly is being evaluated, test results and similar information, and other data as necessary for the building official to determine conformance with this code. Acceptable reports shall be permitted to come from the State of Missouri Public Service Commission or ICC Evaluation Services.

R110.3.8.2.1 Evaluation Service. The building official shall designate the evaluation service of an approved agency as the evaluation agency, and review such agency's evaluation report for adequacy and conformance to this code.

R110.3.8.2.2 Follow-Up Inspection. Except where all assemblies and subassemblies, service equipment, and accessories are readily accessible for complete inspection at the site without disassembly or dismantling, the building official shall conduct the frequency of in-plant inspections as necessary to reasonably ensure conformance to the approved evaluation report or shall designate an approved independent inspection agency to conduct such inspections. The inspection agency shall furnish the building official with the follow-up inspection manual and a written report of inspections upon request, and the product shall have an identifying label permanently affixed to the product indicating that factory inspections have been performed.

R110.3.8.2.3 Test and Inspection Records. All required tests and inspection records shall be accessible to the building official or quality assurance agency at all times during the fabrication of the unit or subassembly and the erection of the building; or such records as the building official designates shall be filed with the building official.

R110.3.8.2.4 Inspection Reports. All inspection reports shall be in writing and shall be certified by the licensed authority or responsible officer of the service, or by the individual when expert inspection services are accepted. An identifying label or stamp permanently fixed to the product indicating that factory inspection has been made shall be accepted in lieu of the aforesaid inspection report in writing if the intent or meaning of such identifying label or stamp is properly substantiated.

R110.3.9 Special Inspections. For special inspections, see Section 1704 of the Building Code.

R110.3.10 Final Inspection. The final inspection shall be made after all work required by the building permit is completed.

Upon completion of the building or structure, and before issuance of the occupancy permit as required in Section R111, a final inspection shall be made. All violations of the approved construction documents and permit shall be noted and the holder of the permit shall be notified of the discrepancies. The building official shall be permitted to issue a partial occupancy permit for a specific period of time. Failure to comply with the conditions shall cause revocation of the permit.

R110.3.11 Blast Survey Inspections. When a permit is issued for the use of explosives, the building official shall cause to be conducted two survey inspections of all buildings within 250 feet of the blasting, and a third inspection to be made after the blasting. These inspections shall indicate any settlement, cracks or other deterioration; additional or supplemental detailed survey work shall be permitted to be required by the building official. Such inspections or survey work, as required by the building official, must be conducted by a private individual or individuals technically competent to do such work and acceptable to the building official. Such private surveys shall be conducted at the expense of the permit applicant. The additional or supplemental survey work shall be permitted to be accepted by the building official in lieu of the pre-blast or post-blast survey if the survey(s) has included all areas within 250 feet of the blasting site and contains the details required herein.

R110.4 Approved Inspection Agencies. The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.

R110.5 Inspection Requests. It shall be the duty of the holder of the building permit or their duly autho-

rized agent to notify the building official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspection of such work for any inspections that are required by this code.

R110.5.1 Action on Notice. Upon receipt of notice that work is ready for inspection, the building official shall inspect, or cause to be inspected, the work as soon as reasonably practicable. However, failure of the building official to make a prompt inspection shall not be deemed justification for covering work without inspection when such work is required under the terms of the permit to be inspected before being covered.

R110.6 Approval Required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the building official.

R110.7 Periodic Inspections. The building official shall, if deemed necessary, make or cause to be made such periodic inspections of buildings, structures, devices, appurtenances, and uses as are required by and in the intervals prescribed by Table R110.7. In order to provide a uniform workload throughout the year, the building official shall be permitted to alter the intervals between periodic inspections as required to meet staffing levels.

Table R110.7

PERIODIC INSPECTION OF STRUCTURES, DEVICES, AND USES

Item	Period between inspections
Cornices, entablatures, belt courses, trim, and similar decorative features; maintenance repair and safe condition thereof (for such items projecting from the face of buildings). See note a.	3 years
Exterior Cantilevered Balconies, Stairways, and Fire Escapes. See note b.	3 years
Other annual permits, certificates, and clearances through Board of Public Service action such as day care centers, nursing homes, homes for the aged, hospitals. See note c.	1 year
Permanent amusement devices	1 year
Auto lifts	1 year
Note a. Applies to all buildings over five stories or 60 feet in height. Owners to submit report bearing the seal, signature, and date of a Missouri licensed Professional Engineer or Architect to the building official every three years describing the condition and safety of cornices, entablatures, belt courses, etc. The building official shall waive inspection if feature does not encroach over a City of Saint Louis sidewalk, street, or alley.	
Note b. Owners shall submit a report bearing the seal, signature, and date of a Missouri licensed Professional Engineer or Architect to the building official every three years describing the condition and safety of exterior cantilevered balconies, stairways, and fire escapes.	
Note c. Applies to all other inspections of buildings or uses not otherwise provided for in this code or any City ordinance which are made annually per the Board of Public Service Permit, and which are assigned by BPS to the Building Division for permit verification, certification, re-certification, or clearances.	

R110.7.1 Professional Inspection. The building official shall require owners to supply inspection reports by Missouri licensed design professionals for any building, structure, appurtenance, or device when, in the building official's opinion, it is necessary to insure proper public safety, health, and welfare.

R110.8 Authority to Enter. The building official shall have the authority to enter at any reasonable hour any building, structure or premises in the City of Saint Louis for which a permit has been issued but has not received a certificate of occupancy in accordance with Section R110 to enforce the provisions of this code or any other code or ordinance of the City of Saint Louis. No person shall accompany a building official onto a premises in the performance of their duty unless otherwise invited onto said premises by the owner or the owner's representative.

For all other structures or premises, when the building official has reasonable cause to believe that a code violation exists, the building official is authorized to enter the building, structure, or premises at reasonable times to inspect subject to constitutional restrictions on

unreasonable searches and seizures. If entry is refused or not obtained, the building official is authorized to pursue recourse as provided by law.

R110.9 Jurisdictional Cooperation. The assistance and cooperation of the Police, Fire, Streets, Parks, and Health Departments and all other City officials shall be available as required in the performance of the duties of the building official.

R110.10 Parking. Division of Building and Inspection employees, when on official duty, shall be allowed to park without payment of fees at any parking meter or contrary to posted no parking zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, or wheelchair ramps or within disabled parking spaces unless vehicle displays a permanent Missouri placard or license plate for the disabled.

R110.10.1 Placards. Each authorized individual shall display one placard approved by the building official in either the front or rear window of private or City vehicles to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets in accordance with Section R110.10 during normal working hours. The Building Commissioner shall not issue such placards to any person not on the Division of Building and Inspection payroll. The Building Commissioner shall have the authority to request cancellation of parking tickets issued contrary to this chapter.

SECTION R111 CERTIFICATE OF OCCUPANCY

R111.1 Use and Occupancy. No building, structure, or premises shall be used or occupied and no change in the existing occupancy classification of a building, structure, premises, or portion thereof shall be made until the building official has issued an occupancy permit as provided herein. Issuance of an occupancy permit shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction. Failure to have an occupancy permit approved and issued by the building official is a violation and both the occupant and owner shall be subject to a penalty as set forth in Section 25.11.030. Each day that a violation continues shall constitute a separate offense.

R111.1.1 Posting notice. It shall be the duty of the building official to post a notice on any building, structure or portion thereof when it is found that an occupancy permit is required before any occupancy shall be permitted to occur. This notice shall remain in plain sight and removal of same shall constitute a separate offense and shall be subject to a penalty as set forth in Section 25.11.030.

R111.2 Partial Occupancy Permits. Upon the request of an owner or an owner's representative, a partial occupancy permit shall be permitted to be issued for a building, structure, or premises, provided that no conditions exist which endanger public life, safety, or welfare. Partial occupancy permits shall be permitted to be subject to conditions.

R111.2.1 Accessible Type A Dwelling Units When Granting Partial Occupancy Permit. Before a partial occupancy can be approved, an accessible Type A unit must be completed in for sale multifamily residential buildings where 50% of the units are built out. This must be an accessible Type A dwelling that was designated on the approved building permit construction drawings or on an addendum. The unit must comply with ICC A117.1-2009 Chapter 10: Dwelling Units, Section 1003, Type A units.

If the accessible Type A dwelling unit on the original building permit construction drawings is not built out in the location shown, the architect of record shall submit revised construction drawings indicating the location of the new accessible Type A dwelling units within the building as an addendum to the original building permit application.

R111.3 Certificate of Substantial Completion. Upon the request of the design professional of record, the building official shall be permitted to issue a Certificate of Substantial Completion for a building, structure, or premises before the entire work covered by the building permit has been completed provided there are no conditions existing which would endanger public safety, health, or welfare. Certificates of Substantial Completion shall be permitted to be subject to conditions. The owner can occupy or utilize the work or designated portion thereof for the use for which it is intended provided a partial occupancy permit has been applied for and issued by the building official.

R111.4 Contents of the Occupancy Permit. When a building, structure, or premises is entitled thereto, the building official shall issue an occupancy permit within a reasonable period of time. The occupancy permit shall certify compliance with the provisions of this code and the purpose for which the building, structure, or premises will be used. The occupancy permit shall specify the use group in accordance with the provisions of Chapter 3 of the Building Code, the type of construc-

tion as defined in Chapter 6 of the Building Code, and any special stipulations and conditions of the building permit. Any building, structure, or premises for which an occupancy permit has been issued shall be permitted to be reinspected to confirm compliance with this code and the Zoning Ordinance.

R111.5 By Whom Application Is Made. An application for an occupancy permit shall be made by the owner of record of the building, structure, or premises. If an occupancy permit application is made by any person other than the owner of record, a notarized letter or some other proof must be presented granting permission from the owner of record to the applicant to apply for the occupancy permit for the stated use. The full names, addresses, and telephone numbers of the owner, lessor, and applicant shall be stated. If the building is owned by a corporation, said notarized permission letter or other proof shall be signed by an officer or registered agent of that corporation. If the applicant for the occupancy permit is a corporation, an officer, registered agent, or other responsible person of that corporation shall sign the application stating their position with said corporation.

R111.6 Posting of Occupancy Permit; Responsibilities. It shall be the duty or responsibility of the operator of every business to display a copy of a legally issued occupancy permit pertaining to the actual business in effect on the premises. It shall be the duty of the Saint Louis Police Department to enforce the provisions of this section. When the building official is informed of or suspects any violation of this code, it shall be the duty of the holder of an occupancy permit to allow the building official to inspect the building, structure, premises, or any portion thereof. Violation of this section shall result in revocation of said occupancy permit and shall be subject to penalties as set forth in Section 25.11.030.

R111.7 Occupancy Permit Application Abandonment. Occupancy permit applications shall be abandoned 60 days after initial application if, in the opinion of the building official, the occupancy permit has not been diligently pursued.

Exception: Those buildings acquired from Land Reutilization Authority, in which case said occupancy permit applications shall be abandoned 180 days after initial application was filed.

R111.8 Revocation. The building official is authorized to, in writing, suspend or revoke an occupancy permit or certificate of substantial completion issued under the provisions of this code whenever the permit is issued in error, on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

SECTION R112 SERVICE UTILITIES

R112.1 Connection of Service Utilities. No person shall make connections from a utility, source of energy, fuel, or power to any building or system that is regulated by this code for which a permit is required until released by the building official.

R112.2 Temporary Connection. The building official shall have the authority to authorize and approve the temporary connection of the building or system to the utility, source of energy, fuel, or power.

R112.3 Authority to Disconnect Service Utilities. The building official shall have the authority to authorize disconnection of utility service to the building, structure, or system regulated by this code and the referenced codes and standards set forth in Section R102.4 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without the approval required by Section R112.1 or 112.2. The building official shall notify the serving utility and, wherever possible, the owner and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection, the owner or occupant of the building, structure, or service system shall be notified in writing as soon as practical thereafter.

SECTION R113 BOARD OF BUILDING APPEALS

R113.1 Creation, Members, and Qualifications. There is hereby established a Board of Building Appeals consisting of seven members appointed by the Mayor, all of whom shall be residents of the City of Saint Louis; at least one of whom shall be a person engaged in the real estate business, one a Missouri licensed professional engineer, one a Missouri licensed architect, one a building contractor or subcontractor, one a person affiliated with the building and construction trades council, and two shall be citizens-at-large. There shall be four alternates who shall be permitted to be called when it is expected there will not be a quorum present. The alternates shall have all powers, protection, and stipends as the regular Board members in

accordance with Civil Service provisions. The alternates shall be appointed by the Mayor for four year terms. One alternate shall be a Missouri licensed professional engineer or Missouri licensed architect; the other alternates shall be citizens-at-large. Alternates shall not make up the majority of the Board at any hearing.

R113.1.1 Term of Office. New members shall possess the same qualifications as the persons in whose place they are appointed. This is an existing board and no current appointments shall be affected by this chapter. All subsequent appointments shall be for a term of four years and shall expire on an anniversary of the date of the original term, except appointments to fill vacancies which shall be for the unexpired term. Members whose appointed terms have expired shall be permitted to continue to serve until reappointed or replaced by a new appointee.

R113.1.2 Procedures. The Board shall elect one of its members as Chairman who shall serve as such during the remainder of the calendar year and until a successor is elected. The Board shall from time to time adopt rules and regulations as shall be reasonably necessary to govern its procedure and to carry into effect the provisions of this code. These rules and regulations shall be available for review at the office of the Secretary to the Board during normal working hours. It shall be unlawful for any appellant or appellant's representative to contact any member of the Board on any matter that is pending or scheduled to be heard by the Board. If a Board member is contacted by an appellant on a matter pending before the Board other than during a Board hearing, that Board member must abstain from hearing or voting on the matter, as all testimony must be heard "sworn on the record."

R113.1.3 Compensation. The Board of Building Appeals members shall be compensated for services rendered on a per meeting basis as established by ordinance and subject to budgeted funds availability.

R113.2 Meetings; Witnesses; Minutes to Be Kept. Meetings of the Board shall be held at the call of the Chairman and at such other times as the Board by its rules shall be permitted to provide. The Chairman, or in the Chairman's absence, the Acting Chairman shall administer oaths. The Board shall act by a majority vote and a quorum shall consist of at least four members. The Board shall keep minutes of its proceedings showing the vote of each member on each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations of witnesses and other official acts. Transcripts of hearings shall be permitted to be kept in the custody of the court reporter and need not be transcribed unless requested. The party requesting the transcripts shall pay all costs of such transcripts required including a file copy for the Board, one for the Building Division, and one for the Board's legal staff.

R113.3 Types of Appeals. Any person, firm, or corporation aggrieved by a decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection shall be permitted to file an appeal when the appellant alleges:

1. That there is an error in an order, requirement, decision, or interpretation of the building official, fire official, or of any other board, commission, or other officer in the enforcement of this code;

2. That the mode, method, or manner to be followed in the erection or alteration of any building or structure in any specific case before the Board is equal to or superior to the mode, method, or manner required by the provisions of this code;

3. That the material to be used in this specific case is equal to or superior to the materials required by the provisions of this code;

4. That any other board or commission exercising powers under this code or any other code or ordinance assigned to the Division of Building and Inspection wrongfully interpreted the provisions of the code or refused to grant a license, certificate, or permit under the provisions of such code.

Exception: The Board of Building Appeals has no jurisdiction or authority to hear and decide appeals on matters covered under the Americans With Disabilities Act, the Zoning Ordinance, and Cultural Resources Ordinance.

However, an application for occupancy, alteration, or repair of an existing building or structure which involves a change of occupancy or change of use group whereupon accessibility requirements apply, the build-

ing official's determination of change of occupancy or use group shall be allowed to be appealed to the Board of Building Appeals.

R113.3.1 Criteria for Issuance of a Variance for Flood Hazard Areas. A variance shall only be issued upon:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration, or topography of the site render the elevation standards inappropriate.

2. A determination that failure to grant the variance would result in exceptional hardship by rendering the lot undevelopable.

3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, or extraordinary public expense or create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

4. A determination that the variance is the minimum necessary to afford relief considering the flood hazard.

5. Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

R113.4 Filing Date. Unless otherwise specified in other sections of this code, appeals shall be filed within 30 calendar days after the decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection is rendered; however, no such appeal shall be taken from any order or ruling wherein responsibility lies with the Board of Adjustment as established by the Zoning Ordinance or with any other board as established by the Revised Code of the City of Saint Louis.

Exception: Condemnation appeals shall be filed within ten calendar days of the date on the Notice of Condemnation as described in Section 119.8.

R113.5 Manner and Fee for Filing Appeals. Appeals shall be taken by filing with the Secretary to the Board a notice of appeal on such forms as prescribed by the Board of Building Appeals specifying the grounds thereof, and the Secretary shall immediately transmit to the Board such notice and all papers constituting the record upon which the action appealed from is taken. The notice of appeal shall be accompanied by a fee of $150.00.

R113.5.1 Waiver of Appeal Fees. In the event the Secretary to the Board receives a written claim of indigence and a request for a fee waiver, the request shall be referred to the City Counselor's Office for approval or denial and that decision shall be final. A copy of that decision shall be kept on file.

R113.5.2 Multiple Appeals. In the event that more than one building, structure, or premises owned by the same person, firm, or corporation has been cited for exactly the same violation and the owner has filed an appeal with the Board disputing the same citation, the appellant shall be permitted to file one appeal covering all said buildings, structures, or premises and be charged one appeal fee. The decision rendered by the Board shall apply to all buildings, structures, or premises involved in the appeal.

R113.5.3 Board Hearings; Notification. After an appeal has been filed, the Secretary to the Board shall place the appeal on a Board hearing agenda and the appellant shall be notified in writing by certified mail prescribing the time, date, and location of the hearing not less than seven days prior to said hearing. Such hearing shall be held within a reasonable time after the filing of the notice of appeal, depending on the scheduling of other appeals.

R113.6 Appeals to Stay Proceedings; Exceptions. Appeals shall stay all proceedings in furtherance of the action appealed from unless the building official or fire official certifies to the Board of Building Appeals after the notice of appeal has been filed that, by reason of the facts stated in the certificate, a stay would cause imminent peril to life or property. Proceedings shall not otherwise be stayed except by restraining order.

R113.7 Jurisdiction of the Board. The Board of Building Appeals is hereby empowered to hear and decide appeals in all matters described in Section 113.3

R113.7.1 Board Decisions; Notification. The Board shall enter its order and decision after hearing, affirming, modifying, or reversing the order, requirement, interpretation, ruling, or decision of the building official in whole or in part. The Board shall be permitted to require conditions or restrictions as necessary to assure that the activity complies with the intent of this code or as the Board deems appropriate. If the appellant fails to

appear at the prescribed time and location of the hearing and it has been determined that notice of the hearing was received, the appeal shall be dismissed and the original order, requirement, interpretation, ruling, or decision of the building official shall be affirmed. A final decision, when used in this section, shall mean a decision rendered by the Board of Building Appeals. The Board shall, upon rendering its final decision, notify the appellant of its order and final decision by mail. The appellant shall be deemed to have received the final decision three days after the final decision has been deposited in the United States mail with proper postage. The Board shall forward its order and decision to the building official, fire official, or any other board, commission, or officer exercising their powers under this code in writing and place a copy of the decision in its files. There shall be no rehearing or reopening of that file by the Board except where the Board has required conditions or restrictions and it is to be determined whether the conditions or restrictions have been met. No information concerning any decision reached by the Board shall be made public except to the appellant until that decision has been signed and the appellant has first been formally notified.

R113.7.2 Generic Decisions. In the event that the Building Commissioner finds that a specific decision of the Board of Building Appeals would be helpful in the continued administration of this code if it were made to be generically applicable, the Building Commissioner shall be permitted to petition the Board in writing requesting that the decision of a specific case be made generically applicable, in part or in whole, without the need for individual appeals and shall become a part of the policy of the Division of Building and Inspection. This request must be made within 180 calendar days of the rendering of the decision. The Board shall only affirm or deny such petition.

R113.7.3 Conditional Decisions; Method of Rehearing. When the Board of Building Appeals enters a conditional decision modifying or reversing an order of the building official and grants additional time to correct the violation(s), the Board shall grant no more than 90 days. Additional time shall be permitted to be granted if, in the opinion of the building official, sufficient progress is being made to correct the violation(s). In the event insufficient progress is being made to correct the violation(s) in the allotted time, the case shall be referred back to the Board of Building Appeals to show cause why the conditions set by the Board have not been met and why the building official's original order or decision should not be affirmed. In the event of such referral back to the Board, notification to the appellant prescribing the date, time, and location of said hearing shall be the same as that described in Section R113.5.3.

R113.8 Appeals from Decisions of the Board. Any person(s) jointly or severally aggrieved by the decision of the Board of Building Appeals shall be entitled to a judicial review of the decision rendered by the Board of Building Appeals as provided in the Administrative Procedure and Review Act of the State of Missouri, being Sections 536.100—536.140 of the Revised Statutes of Missouri.

R113.9 Hearing Officer. The Board of Building Appeals shall have the right to appoint a hearing officer to hear and render a decision on any appeal filed with the Board of Building Appeals.

R113.9.1 Qualification. The hearing officer shall be an attorney and on an approved list of attorneys who have administrative law experience. The Director of Public Safety shall compile and maintain said list.

R113.9.2 Rights and Duties. The hearing officer shall have such rights, responsibilities, and duties as the Board of Building Appeals and the appellants shall have the same rights as an appellant appearing before the Board of Building Appeals, including the right to appeal pursuant to Missouri's Administrative Procedure and Review Act.

SECTION R114 VIOLATIONS

R114.1 Unlawful Acts. It shall be unlawful for any person, firm, or corporation to grade for, excavate for, erect, construct, alter, extend, repair, move, remove, demolish, or occupy any building, structure, premises, or equipment regulated by this code or cause same to be done in conflict with or in violation of the provisions of this code or any decision or order of the Board of Building Appeals.

R114.2 Notice of Violation. The building official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or on the person responsible for the grading, excavating, erection, construction, alteration, extension, repair, moving, removal, demolition, or occupancy of a building, structure, or premises in violation of the provisions of this code, or in violation of a detail statement or construction documents approved hereunder, or in violation of a permit or certificate

issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the building official.

R114.2.1 Investigation of Records. Upon the receipt of a written request from the owner of the property, or the real estate agent for the property, or the attorney, architect, or engineer representing the owner of the property, the Permit Section Supervisor shall ask the various Building Division sections for copies of any existing violation letters concerning the property. If the request is not on the owner's letterhead, a notarized authorization from the owner must be submitted.

The response letter written by the permit section supervisor shall list any known violations and must contain the following statement: "This letter does not certify that there are no actual existing violations of the ordinances for which the Division of Building and Inspection is responsible. To determine if there are any violations of any ordinances, an application for an occupancy permit must be filed in accordance with Section R111.5 and the subsequent inspections completed. This letter does certify there are no existing letters of violation on record other than those attached herein. There will be a $25.00 fee charged for this service. Five working days will be allowed to respond to this request."

R114.3 Prosecution of Violation. If the notice of violation is not complied within the time prescribed by such notice, the building official is authorized to request the legal counsel of the City of Saint Louis to institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of the unlawful occupancy of the building, structure, or premises in violation of the provisions of this code or of the order or direction made pursuant thereto.

R114.4 Violation Penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters, or repairs a building or structure in violation of the approved construction documents or directive of the building official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as prescribed by law.

R114.5 Abatement of Violation. The imposition of penalties as set forth in Section 25.11.030 shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction; to restrain, correct, or abate a violation; to prevent illegal occupancy of a building, structure, or premises; or to stop an illegal act, business, or use.

SECTION R115 STOP WORK ORDER

R115.1 Authority. Whenever the building official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the building official is authorized to issue a stop work order.

R115.2 Issuance. The work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.

R115.3 Emergencies. When an emergency exists, the fire official shall not be required to give a written notice prior to stopping the work.

R115.4 Unlawful Continuance. Any person who shall continue any work in or about the building, structure, or premises after having been served with a stop work order, except such work as they are directed to perform to remove a violation or unsafe condition, shall, upon conviction thereof, be subject to the penalties as set forth in Section 25.11.030. Each day that a violation continues shall constitute a separate and distinct offense.

SECTION R116 UNSAFE BUILDINGS, STRUCTURES AND EQUIPMENT

R116.1 Conditions. Buildings, structures, or equipment that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress, facilities, or light and ventilation; which constitute a fire hazard; are otherwise dangerous to human life or the public welfare; or which involve illegal or improper occupancy or inadequate maintenance shall be deemed unsafe. Unsafe buildings or structures shall be taken down and removed or made safe as the building official

deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.

R116.2 Record. The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

R116.3 Notice. If an unsafe condition is found, the building official shall serve on the owner, agent, or person in control of the building or structure a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition, or that requires the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare immediately to the building official acceptance or rejection of the terms of the order.

R116.4 Method of Service. Such notice shall be deemed properly served if a copy thereof is (a) delivered to the owner personally; (b) sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested; or (c) delivered in any other manner as prescribed by local law. If the certified or registered letter is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

R116.5 Restoration. Where the building, structure, or equipment determined to be unsafe by the building official is restored to a safe condition to the extent that repairs, alterations, or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of Section R105.2.2 and the Existing Building Code.

SECTION R117 PROFESSIONAL ARCHITECTURAL AND ENGINEERING SERVICES

R117.1 Responsibilities. The provisions of this section shall define the construction controls required for buildings involving professional architectural or engineering services and delineate the responsibilities of such professional services during construction.

R117.1.1 Design. All design for new construction, alteration, repair, expansion, addition, or modification work involving the practice of professional architecture or engineering as defined by the statutory requirements of the professional licensing laws of the State of Missouri shall be prepared by licensed design professionals certified by the Missouri Board for Architects, Professional Engineers, Professional Land Surveyors and Professional Landscape Architects. All construction documents required for a building permit application for such work shall be prepared by or under the direct supervision of a Missouri licensed design professional and bear their seal, signature, and date in accordance with the state's statutes and regulations governing the professional licensing and certification of architects, professional engineers, professional land surveyors, and professional landscape architects.

R117.1.2 Review. The Missouri licensed design professional whose seal is on the approved construction documents shall be responsible for review of shop drawings and samples as required by the approved construction documents and for approval for conformance to the design concept and this code. This review process shall be permitted to be contracted by the owner to another Missouri licensed design professional should the original design professional not desire to provide such services.

R117.1.3 Application of Seal, Signature, and Date. All construction documents submitted with an application for a building permit shall comply with Section 107.1.1.

R117.1.4 Reproduction of Sealed Documents. Construction documents sealed by a Missouri licensed design professional shall not be reproduced for anyone, other than the owner, without the expressed written permission of Missouri licensed design professional who sealed said documents, or as ordered by a court of law.

R117.2 Special Professional Services. When applications are filed for unusual designs or magnitude of construction which require construction document review or inspection services beyond the capacity of the building official's staff or where referenced standards require special architect or engineer inspections, the building official shall be permitted to require the owner to retain a properly qualified Missouri licensed design professional to perform the services necessary for code compliance in addition to that provided in Section 117.1.2. This project representative shall keep daily records and submit reports as required by the building official. Upon completion of the work, the Missouri

licensed design professional shall file a final report indicating whether or not all required inspections were performed and listing pertinent deviations from the Building Code requirements or from the approved construction documents and the source of authority for such deviations.

R117.2.1 Building Permit Requirement. The necessity for special professional services shall be determined prior to issuance of the building permit unless waived to a later date by the building official. Refusal by the applicant to provide such services as required by the building official shall result in the denial of the permit.

R117.2.2 Fees and Costs. All fees and costs related to the performance of special inspection services shall be borne by the owner.

R117.2.3 Visits to Site. When so directed by the building official or when required by the special inspection provisions of this code, the Missouri licensed design professional shall make visits to the site at intervals appropriate to the stage of the construction to observe the progress and quality of the work; to observe construction components requiring controlled materials or construction as specified in Chapter 44, Referenced Standards; and to determine if the work is proceeding in accordance with the construction documents approved for the building permit. The Missouri licensed design professional shall periodically submit reports to the building official showing the results of such periodic visits.

SECTION R118 WORKMANSHIP

R118.1 General. All work shall be conducted, installed and completed in a neat, workmanlike and acceptable manner so as to secure the results intended by this code.

SECTION R119 CONDEMNATIONS

R119.1 Notification. If upon making an inspection and examination of any occupied or unoccupied building, structure, or premises, the building official finds one or more of the defects described below, the building official shall notify in writing, as provided in Section R119.2, the owner(s) of said building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office of the defects found in said building, structure, or premises and shall order them to proceed to properly demolish, repair and secure, or correct all conditions causing condemnation of said building, structure, or premises within seven days. This document is to be known as a Notice of Condemnation. If the conditions have not been corrected by the date listed in the notice, the building, structure, premises, or portion thereof or appurtenance thereto will be condemned and shall be required to be vacated, if occupied, and secured. Possible defects shall be permitted to be one or more of the following:

1. The building or structure is in a condition which endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

2. The condition of the building or structure by reason of the making of an excavation on the lot on which it is located, or any adjoining lot, endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

3. The building, structure or premises is a fire hazard for any reason, including, without limitation: obsolescence; dilapidation; deterioration; damage; lack of sufficient fire-resisting qualities; poor sanitation; or faulty electrical wiring, gas connections, or heating apparatus;

4. The building or structure lacks safe or adequate facilities for means of egress in case of fire or panic;

5. The building or structure has any one or more of the following conditions:

A. Improperly distributed loads upon the floors or roof;

B. Overloaded floors or roofs;

C. Insufficient strength to be reasonably safe for its actual or intended use;

6. Any portion of the building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause, that the building or structure is no longer safe or suitable for its actual or intended use;

7. Any interior or exterior portion, member, appurtenance, ornamentation, or any other component of the building or structure is likely to fall or collapse, or become detached or dislodged and thereby injure persons or damage property;

8. Any portion of the building or structure has racked, warped, buckled, or settled to such an extent that its walls or other structural portions have insufficient resistance to fire, earthquake, wind, flood, or similar perils;

9. Part or all of the building or structure is in danger of collapsing for any reason;

10. The building or structure has exterior walls or other vertical structural members which list, lean, or buckle;

11. The building, structure, or premises or any portion thereof is, for any reason, unsafe for its actual or intended use;

12. The building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause or has become so dilapidated, deteriorated, or decayed as to come within any one or more of the following categories:

A. The building or structure will attract and result in harm to children;

B. The building or structure is, or is likely to become, a harbor for vagrants or criminals;

C. The building or structure enables persons to resort thereto for the purpose of committing unlawful acts;

13. The building, structure, or premises has been constructed, exists, or is being maintained in violation of any provisions of this code or of any law of the City of Saint Louis;

14. The building or structure does not have the strength, fire-resisting qualities or weather-resisting qualities required by this code for newly constructed buildings of like area, height, and occupancy;

15. The building, structure, or premises is used or intended to be used for purposes that are likely to injure the health, safety, or welfare of persons who occupy or could occupy said building or structure by reason of any one or more of the following conditions:

A. Inadequate maintenance, dilapidation, deterioration, decay, or damage;

B. Faulty construction;

C. Inadequate light, ventilation, or sanitation facilities;

D. The building, structure or premises is being used for any illegal purposes;

16. Any portion of the building or structure has been left remaining on a site after its demolition or destruction;

17. The building or structure is vacant for a period in excess of six months and because of its condition is unsafe, unsanitary, or endangers property or public health, safety, or welfare;

18. The building or structure is vacant and has been ordered secure or has been secured by order of the building official for a period in excess of twelve months and has been condemned for occupancy or has been used in the commission of a crime subsequent to being ordered secured or being secured.

19. The building or structure is only partly constructed and construction has stopped for a period in excess of six months, and because of its condition, affects the health, safety and welfare of the adjacent properties.

R119.1.1 Evacuation Order; Failure to Comply. Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order by the building official, except such person(s) directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person from said building, structure, or premises and prevent anyone from re-entering the building, structure, or premises until such time that the Police Department shall have been notified by the Division of Building and Inspection that the same is in a safe condition. Any person who shall violate this section shall be guilty of a misdemeanor and subject to the penalties as set forth in Section 25.11.030.

R119.1.2 Dangerous Conditions. Whenever the building official shall find any building, structure or premises in such a condition that it presents a safety hazard, but not dangerous enough to warrant condemnation and demolition, and repair is relatively small in relation to the building as a whole, the building official shall post a sign on the premises which reads as follows:

WARNING ALL PERSONS ARE WARNED TO USE EXTREME CAUTION IN OR AROUND THESE PREMISES

Additionally, a letter shall be posted indicating those conditions in violation of this code and a copy of said letter shall be mailed to the owner(s) of said building, structure, or premises.

R119.2 Service of Notice. The notice to the owner(s) of the building, structure, or premises found by the building official to be in violation of this code shall be directed to the owner(s) of such building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office. The notice shall be served in one of the following ways:

1. Delivering directly to owner(s).

2. Posting a copy of said notice upon the building, structure, or premises.

3. Mailing a copy of said notice by regular mail, postage prepaid, direct to owner(s)' place of business or the address currently recorded in the Assessor's Office of the City of St. Louis.

4. Publication in a newspaper of general circulation in the City of Saint Louis.

R119.2.1 Posting Copy of Notice. In case such building, structure, or premises is in the occupancy of a tenant(s), in addition to the above notice it shall be the duty of the building official to post a copy of such notice upon said building, structure, or premises. It shall be a violation of this code for any person to remove any notice or copy thereof lawfully posted pursuant to this code unless otherwise ordered by the building official.

R119.3 Failure to Comply; Authority to Enter into Contracts. If the owner(s) fail to comply with the order of the building official by the date indicated in the Notice of Condemnation and in such a manner that can be approved by the building official, then such owner(s) shall have violated this code and the building official shall be permitted to forthwith proceed to undertake and complete whatever work is necessary to eliminate the dangerous condition. The Building Commissioner shall have the authority to enter into contracts with no other review, signature, or approval (except for insurance) from any other City agency. Such contracts shall be permitted to include, but not be limited to, demolition, environmental investigation, remedial work, professional, or contractual services. Competitive bids shall not be required for emergency situations where there is a danger to life or property. The cost of such work performed by the building official under the provisions of Sections R119 or R120 shall be paid for by the City of Saint Louis. The building official shall certify to the Comptroller the cost of such work including the administrative costs incurred by the Division of Building and Inspection in performing said work, but in no event shall such administrative costs exceed ten percent of the contract price incurred by the Division of Building and Inspection in performing such work. The Comptroller, upon certification by the building official of the cost expended for said work, shall prepare bills for such work against the owner(s) of said building, structure, or premises. In case said bills are not paid upon presentation, they shall be referred to the City Counselor, who shall proceed to collect same by suit or lien if necessary, and the amounts when collected shall be credited to a special revolving fund for the purposes herein designated.

R119.3.1 Secured Buildings. For a building or structure to be "secured" in those cases in which securing is specifically required by this code, a covering shall be placed over all doors, windows, or other openings at the first floor level; all doors and windows that are accessible from any porch, service stair, or fire escape; and all basement or cellar windows. This cover shall consist of not less than ⅜ inch plywood or other such material approved by the building official attached to the framing of all such doors and windows by wood screws, or any other material approved by the building official, of a minimum length of 1½ inches, placed not more than twelve inches on center. Such plywood or other such material approved by the building official shall be painted with a minimum of two coats of exterior grade paint of a brick red or other color which is approved by the building official. It shall be the duty and responsibility of the building official to re-enter any premises or building or portion thereof that has previously been secured and boarded either by the City of Saint Louis or any other party when, in the opinion of the building official, there is reason to believe that there happens to be new or additional violations of this code. The building official shall not be held responsible for any damage to the building, structure, or premises caused by the act of securing.

R119.3.2 Reentry of Secured Buildings. The occupancy of any building or structure which has been ordered secured or has been secured by order of the building official shall be prohibited until the owner of said building or structure obtains a certificate of inspection or an occupancy permit from the building official. Work performed on any building or structure as a prerequisite to a certificate of inspection shall not be considered occupancy of said building or structure.

R119.4 Building Not to Be Rented or Leased. No owner or agent of the owner of any building, structure, or premises, after notice from the building official that such building, structure, or premises is unsafe or dangerous, shall rent or lease the same or any part thereof or collect any rent therefor until such building, structure, or premises has been placed in a safe and secure condition. The building official shall be permitted to require an occupancy permit to be issued prior to occupancy or re-occupancy. Any person found guilty of violating the provisions of this section shall be sub-

ject to the penalties as set forth in Section 25.11.030 regarding fine and imprisonment. Each day that a violation continues constitutes a separate and distinct offense.

R119.5 Cost; Method of Payment; Lien; Penalty. The building official shall have the authority to require any violator of this code to correct, remove, or abate any condition caused or permitted by them in violation of this code; and the building official shall be permitted to correct, remove, or abate the same upon their failure to comply with the requirements of this code when the public interest so requires. For all emergency condemned buildings or structures, the building official shall have the authority to receive and publicly open bids and award the contract to the lowest qualified bidder meeting the specifications without first sending said contract to the Comptroller. These contracts shall be signed by the Building Commissioner and countersigned by the Director of Public Safety and shall have the full effect of a City contract. All costs attending such action in such cases shall be paid from the appropriate fund as provided in Section 119.3 and then collected from the party offending as therein provided. A lien for such costs shall be placed against the property whereon such violation was permitted to exist. The cost shall also be certified to the Collector of Revenue or other official collecting real estate taxes, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid. These bills or liens shall not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such bills or liens. Further, board-up and demolition bills shall be permitted to be waived when ownership of said property for which the bill or lien was issued is accepted by Land Reutilization Authority, Saint Louis Development Corporation, or any other City agency. Any person, firm or corporation who shall refuse or neglect to comply with the provisions of this section or who shall violate any of the provisions thereof shall be subject to the penalties as set forth in Section 25.11.030. In addition, any payments deemed to be in arrears shall be subject to interest charges at a rate set by the Comptroller.

R119.5.1 Prohibited Expenditures. The building official shall not expend any monies for demolition of buildings owned by Land Reutilization Authority, Operation Impact, Saint Louis Development Corporation, Port Authority, or any other governmental agency except in emergency situations where immediate action is required to preserve public health, safety, and welfare.

R119.6 Vacation of Buildings; Duties of Police; Penalty. Upon effecting condemnation of any building, structure, or premises by the building official, it shall be unlawful for any person to enter or remain in or on such building, structure, or premises until such time as the Police Department shall have been notified in writing by the building official that the same is in a safe condition. It shall be the duty of the Police to remove any person from such building, structure, or premises so condemned and to prevent any person from entering same until such time as the Police Department shall have been notified in writing by the building official that such building, structure, or premises is in compliance with this code. The provisions of this section shall not apply to licensed security guards or persons directly employed in securing the building, structure, or premises or otherwise abating the conditions causing the condemnation. Any violation of this section of the code shall be subject to the penalties as set forth in Section 25.11.030.

R119.7 Removal of Decayed or Unsafe Trees. Whenever it shall come to the knowledge of the Forestry Commissioner that any tree on private property is in such a decayed or dangerous condition as to endanger the lives of persons or is likely to cause immediate damage to the property of others, the Forestry Commissioner shall cause said tree to be removed or cause such dangerous conditions to be remedied by the owner of the property whereon it is situated. The powers and duties of the Forestry Commissioner in respect to any such tree, the notice to the owner of the property whereon it is located, the cost of its removal or remedying the dangerous condition caused thereby, the lien of such cost, the method of its collection, the penalties to be incurred by the owner, and the procedure to be followed by the Forestry Commissioner shall, as nearly as practicable, be those prescribed by this section in respect to the building official's procedures for buildings and other structures which are in a dangerous condition.

If the Forestry Commissioner cannot secure removal of the dangerous tree by Forestry Division forces or by response of the owner to the Forestry Division notice, the Forestry Commissioner shall be permitted

to request the assistance of the building official in condemning the tree and securing removal after emergency or public bid by private contractors resulting in a City of Saint Louis contract to remove the tree.

The condemnation, if appealed to the Board of Building Appeals, shall require the defense testimony of Forestry Division personnel knowledgeable about trees.

The Building Division shall be permitted to make available for tree removal contracts on private property a sum not to exceed five percent of the first two hundred thousand dollars of general fund demolition monies appropriated in a fiscal year, in addition to not more than three percent of any appropriated amount over $200,000.00. The Forestry Division will prepare bid specifications and receive, process, and award such contracts billable to the Building Division demolition account subject to the dollar limits above. This procedure is for dead or dangerous trees on private property only and is not for encroachments, trimming, pruning, or other concerns.

R119.8 Appeal. Any person aggrieved by the decision of the building official pursuant to Sections R119.1 through R119.7 shall be permitted to appeal such decisions to the Board of Building Appeals within ten calendar days of the date on the Notice of Condemnation. The Condemnation Committee of the Board of Building Appeals, selected by the Chairman, shall hear said appeal and render its decision affirming, modifying, or reversing the decision of the building official and, to such end, shall possess all the powers on appeal granted the building official under Sections R119.1 through R119.7. Such decision shall be subject to the procedures and review provided by the Administrative Procedure and Review Act of the State of Missouri. Filing of an appeal of any portion of Sections R119.1 through R119.7 does not stay any action provided in these sections.

R119.9 Penalties. If the owner(s) fail to repair, demolish, or otherwise comply a building, structure, or premises as ordered by the Notice of Condemnation of the building official pursuant to Section R119.2 either within the seven-day period specified in Section R119.1 or within ten days after any appeal from said notice as provided in Section R119.8 is finally adjudicated adversely to said owner(s), then said owner(s) shall be guilty of a violation of this section and shall, upon conviction thereof, be subject to penalties as set forth in Section 25.11.030. Each day that any violation continues shall constitute a separate and distinct offense.

R119.10 Responsibility of Ownership.

1. *Disclosure.* It shall be unlawful for any seller or grantor to convey, give, or transfer property to any buyer or grantee without first disclosing in writing to the buyer or grantee the existence of all Notices of Condemnation or any other violations of this code. The grantor shall keep and make available for inspection by the building official such disclosure signed by the grantee for a period of one year from the conveyance, gift, or transfer.

2. *Liability to Prosecution and Conviction.* Any person shall be permitted to be prosecuted and convicted for violation of Section 119.1.1, notwithstanding that said person has not been given the notice specified in Section R119.1, provided that the building, structure, or premises in question had one or more of the defects described in Section R119.1 during the period that said person was responsible for said building, structure, or premises as owner, corporate officer, partner, or otherwise, and provided further that said prosecution is commenced during the one-year period after said person ceased to be so responsible.

3. *Liability to Suit and Judgment.* Any person shall be permitted to be sued by and held liable to the City of Saint Louis, as provided in Section R119.3, for funds expended by the City of Saint Louis pursuant to said section, notwithstanding that said person has not been given the notice specified in Section R119.1, provided that the building, structure, or premises in question had one or more of the defects described in said section during the period that said person was responsible for said building, structure, or premises as owner, corporate officer, partner, or otherwise, and provided further that said suit is commenced during the one-year period after said person ceased to be so responsible.

Owner(s) are presumed by law to know the conditions of their property whether or not such notice was given. Notices sent to the address of the owner(s) shown on the City of Saint Louis Assessors Office records on the date sent shall constitute legal notice in accord with Section R119.2.

R119.11 Dangerous, Hazardous, Unsanitary, or Unapproved Plumbing, Mechanical, and Electrical Installations. The building official shall have the authority to seal out of service the items listed below when, in the building official's opinion, any of these items are in an

unsafe, hazardous, or unsanitary condition; if a Certificate of Inspection has not been issued by the building official; or if the installation was made without obtaining the necessary permit(s):

1. Plumbing equipment, fixtures, piping, devices, and appurtenances covered by the Building and Plumbing Codes;

2. Mechanical equipment, devices, and appurtenances covered by the Building and Mechanical Codes.

3. Electrical equipment, fixtures, devices, wiring, and appurtenances covered by the Building and Electrical Codes;

R119.11.1 Notice of sealing out of service. Before sealing any device out of service, the building official, except in cases of emergency, shall serve seven days written notice upon the building owner(s) or occupant(s) by United States mail stating intention to seal the equipment out of service and the reasons therefor. Notice shall be permitted to alternately be served by posting upon or immediately adjacent to the device proposed to be sealed.

R119.11.2 Unlawful to remove or tamper with seal. Any device sealed out of service by the building official shall be plainly marked with a sign or tag indicating such sealing and any defacing or removal of the sign or tag, any tampering with or removal of the seal without approval of the building official, or operation of the sealed unit shall constitute a violation of this code and shall subject the violator to the penalties as set forth in Section 25.11.030.

119.12 Cancellation of Condemnation. The building official shall have authority to cancel prior condemnations either for defects or for occupancy. A condemnation shall be permitted to be rescinded by the building official only after, in the official's opinion, all necessary repairs are made to such building, structure, or premises or otherwise compliance is obtained with the building official's orders to make such building, structure, or premises safe or occupiable and defects noted have been corrected.

R119.12.1 Notice of cancellation of condemnations. Upon cancellation of a condemnation, a notice shall be directed to the owner(s) of the building, structure, or premises stating that the condemnation has been canceled. The service of such notice shall be done in the same manner as provided for in Section R119.2.

R119.13 Vacant Building Inspection. The building official shall cause to be inspected any property that potentially is subject to the registration fee as established in Section R109.2.12. The inspecting officer shall report his findings and it shall be determined whether any such property shall be subject to the registration fee by the City. Within five business days of such determination, the building official shall notify by mail the owners of property on which the registration fee has been levied at the last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the building official to the municipal court within 30 days of such notification. Absent the existence of any valid appeal or request for reconsideration the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the building official.

R119.13.1 Reconsideration. Should the property owner, within 30 days of the building official making such notification, complete any improvements to the property that would be necessary to revoke the levy of the registration fee, they shall request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the building official revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the building official affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the building official.

R119.13.2 Payment and Penalties. The building official shall establish procedures for the payment of the registration fee and penalties for delinquent payment of such fees. Any registration fees which are delinquent for a period of one year shall become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations cited by the building official have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party said lien shall be considered released and the delinquent registration fee forgiven.

SECTION R120 EMERGENCY MEASURES

R120.1 Procedure. When, in the opinion of the building official, a building, structure, or premises poses an immediate or imminent danger to the public health, safety, or welfare as defined in Section R119.1, the building official shall order the immediate evacuation and securing of said building, structure, or premises and shall be permitted to order all utilities to be disconnected without sending a notice. Each principle entrance shall be posted with a notice which reads as follows:

DANGER THIS PREMISES IS UNSAFE AND HAS BEEN CONDEMNED

ALL PERSONS ARE WARNED TO KEEP AWAY

Any person who refuses to leave, interferes with the evacuation of other occupants, occupies, or continues any operation after the property has been posted pursuant to this section, except such person(s) who is directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section and it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone, unless approved by the building official, from reentering the building, structure, or premises until such time that the Police Department shall have been notified that the same is in a safe condition. The building official assumes no responsibility for persons entering upon said property, and said persons proceed at their own risk and assume all liability.

R120.2 Temporary Safeguards. When, in the opinion of the building official, there is actual and immediate danger of collapse or failure of a building or structure or any part thereof which would endanger life, the building official shall be permitted to cause the necessary work to be done to render such building or structure or part thereof temporarily safe whether or not the legal procedure herein described has been instituted.

R120.3 Closure. When necessary for public safety, the building official shall temporarily close sidewalks, streets, buildings, structures, and places adjacent to such unsafe building, structure, or premises and prohibit the same from being used.

R120.3.1 Catchment Enclosures. If, in the opinion of the building official, it is determined that there exists an imminent structural hazard, catchment enclosures shall be erected protecting adjoining property and the public right-of-way. The cost for such catchment enclosures shall be the responsibility of the owner of record immediately adjacent to the catchment enclosure and the recovery of said costs will be as described in Section 120.5.

R120.4 Emergency Repairs; Remedies. For the purpose of this section, the building official shall be permitted to employ the necessary labor and materials to perform the required work as expeditiously as possible. Further, when it is found that potable water is running inside a vacant building or structure and the owner or the owner's representative cannot be contacted, and where severe structural or other damage can thus occur to adjacent properties, the Building Commissioner or the Health Commissioner shall be permitted to order the Water Division to cease the problem flow by whatever means the Water Division finds necessary. The Water Division shall comply with any order issued pursuant to this section.

R120.5 Cost of Emergency Repairs or Demolition. Costs incurred in the performance of emergency work shall be paid from the Treasury of the City of Saint Louis on certification of the building official. The legal counsel of the City of Saint Louis shall institute appropriate action against the owner(s) of the premises where the unsafe building or structure is or was located for the recovery of such costs plus a ten percent administrative fee. If such cost is not collected, a lien shall be requested to be placed upon the property by the Comptroller. The costs shall also be certified by the Collector of Revenue or other official collecting real estate taxes, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid.

R120.6 Emergency Demolition or Removal. If, in the opinion of the building official, a building, structure, tree, or premises, in whole or in part, poses an immediate and imminent danger to the public health, safety, or welfare by virtue of its condition or conditions in violation of this code, the building official shall be permitted to cause the immediate removal of said building, structure, or tree without the notice set forth elsewhere in this code. Further, the building official shall have the authority to award a sole source contract for demolition of said dangerous building, structure, or tree.

SECTION R121 REGISTRATION OF VACANT BUILDINGS

R121.1 Vacant Building Registration Fee. The owner of any parcel of residential property improved by a residential structure or of commercial property improved by a structure containing multiple dwelling units which is vacant and has been vacant for at least six months and which is in violation of this code shall pay a semiannual registration fee of two hundred dollars.

R121.2 Inspection. The Building Commissioner or his designee shall inspect any property that may be subject to the registration fee established in Section R121.1. The inspecting officer shall report his findings and recommendations and the Building Commissioner or his designee shall determine whether any such property shall be subject to the registration fee. Within five business days of such determination, the Building Commissioner or his designee shall notify by mail the owners of property on which the registration fee has been levied at their last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the Building Commissioner to the municipal court within thirty days of such notification. Absent the existence of any valid appeal or request for reconsideration pursuant to Section R121.3, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the Building Commissioner.

R121.3 Revocation of Fees. Within thirty days of the Building Commissioner making notification pursuant to Section R121.2, the property owner may complete any improvements to the property that may be necessary to revoke the levy of the registration fee and then may request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the Building Commissioner or his designee revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the Building Commissioner or his designee affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision of the Building Commissioner to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the Building Commissioner.

R121.4 Payment of Fees. The Building Commissioner is hereby authorized to establish procedures for the payment of the registration fee and penalties for delinquent payments of such fees. Any registration fees which are delinquent for a period of one year shall become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations of the applicable code cited by the Building Commissioner have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party, said lien shall be considered released and the delinquent registration fee forgiven.

R121.5 Registration. The property owner shall provide their name, street address, phone number, and email address to the Assessor's Office. If the property owner does not reside in Missouri or Illinois, the property owner is required to provide the name, street address, and telephone number of a natural person eighteen years of age or older designated by the property owner as the authorized agent for receiving notices of code violations and for receiving process in any court proceeding or administrative enforcement proceeding on behalf of such owner or owners in connection with the enforcement of this code. This person must maintain an office in either the State of Missouri or Illinois or must actually reside in either the State of Missouri or Illinois. The Building Commissioner shall be responsible for providing the information to the City Information Technology Services Agency and the information shall be available through the Geo St. Louis website.

R121.6 Vacant Building Maintenance. The owner of any building that has become vacant shall, within thirty days, do the following:

1. Enclose and secure the building as defined under Section 119 of this code. All doors must be properly secured and windows on all floors of the building shall be properly secured.

2. Maintain the building in a secure and closed condition until the building is again occupied or until repair or completion of the building has been undertaken.

R121.7 Collected Funds. The Comptroller of the City of St. Louis is hereby authorized and directed to establish a Special Account to be known as the Vacant Building Initiative Fund in which all funds received

pursuant to this section shall be deposited and such funds shall be kept separate and apart from all other funds. One half of such funds are hereby appropriated for the costs associated with this section and other costs associated with code enforcement pertaining to vacant property. One half of such funds shall be distributed to the City's Community Development Administration for purposes of offering grants to reduce and prevent vacant and blighted property. All interest generated on deposited funds shall be accrued to the Vacant Building Initiative Fund Account.

R121.8 Penalties. If an owner fails to pay the registration fee under Section R121.1 thirty days after the registration fee is assessed, a penalty shall be assessed of $250.00 per occurrence. Any owner found to be in violation of provisions of Section 121.5 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Any owner found to be in violation of provisions of Section 121.6 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Every day that a violation continues shall constitute a separate and distinct offense.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Modify Section R202 Definitions by the addition or changing of definitions to read as follows:

Balcony. A projecting platform on a building, sometimes supported from below, sometimes cantilevered enclosed with a railing or balustrade.

Building official or *code official.* The Building Commissioner of the City of Saint Louis or any duly authorized representative.

Construction cost. The cost of all construction portions of a project, generally based upon the sum of the labor and materials used in the performance of the construction contract and other direct construction cost; does not include the compensation paid to the architect and consultants, the cost of the land, right-of-way, or other costs which are defined in the construction documents as being the responsibility of the owner.

Electric vehicle ready space. A designated parking space which is provided with one 50 ampere, 208/240 volt dedicated branch circuit for EVSE servicing Electric Vehicles. The circuit shall terminate in a suitable termination point such as a receptacle or junction box and be located in the close proximity to the proposed location of the Electric Vehicle parking space.

Electric vehicle supply equipment (EVSE). The conductors, including the ungrounded, grounded, and equipment grounding conductors, and the electric vehicle connectors, attachment plugs, and all other fittings, devices, power outlets, or apparatus installed specifically for the purpose of transferring energy between the premises wiring and the electric vehicle.

EVSE installed space. A designated parking space which is provided with EVSE installed.

Licensed design professional. An individual who is licensed to practice their respective design profession as defined by RSMo Ch. 327.

Project cost. The total cost of a project including professional compensation, land cost, furnishings and equipment, financing, and other charges as well as the construction cost.

Registered design professional. Same as *Licensed design professional.*

Sun deck. A roof area, balcony, open porch, etc., which is exposed to the sun.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Change Table R301.2(1) to read as follows:

Table R301.2(1)

CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD	WIND DESIGN		SEISMIC DESIGN CATEGORY (g)	SUBJECT TO DAMAGE FROM		
	Speed (d) (mph)	Topographic Effects (k)		Weathering (a)	Frost Line Depth (b)	Termite (c)
20 psf	115	NO	C	Severe	30 inches	Moderate to Heavy
WINTER DESIGN TEMP (f)	**ICE SHIELD UNDERLAYMENT REQUIRED (j)**		**FLOOD HAZARDS (h)**		**AIR FREEZING INDEX (j)**	**MEAN ANNUAL TEMP (k)**
5° F	Not Required		May 24, 2011		963° F - days	55° F
No Change to Notes.						

Change Table R302.1(1) to read as follows:

Table R302.1(1)

EXTERIOR WALLS

EXTERIOR WALL ELEMENT		MINIMUM FIRE-RESISTANCE RATING	MINIMUM FIRE SEPARATION DISTANCE
Walls	(Fire-resistance rated)	1 hour-tested in accordance with ASTM E 119 or UL 263 with exposure from both sides	≤ 3 feet
	(Not fire-resistance rated)	0 hours	> 3 feet
Projections	(Fire-resistance rated)	1 hour on the underside, or heavy timber, or fire-retardant-treated wood a,b	≥ 2 feet to 3 feet
	(Not fire-resistance rated)	0 hours	> 3 feet
Openings in walls	Not allowed	N/A	< 3 feet
	25% maximum of wall area	0 hours	3 feet
	Unlimited	0 hours	> 3 feet
Penetrations	All	Comply with Section R302.4	< 3 feet
		None required	≥ 3 feet

For SI: 1 foot = 304.8 mm.

NA = Not Applicable.

a. The fire resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave opening if fireblocking is provided from the wall top plate to the underside of the roof sheathing.

b. The fire-resistance rating shall be permitted to be reduced to 0 hours on the underside of the rake overhang where gable vent openings are not installed.

Change Section R302.2 to read as follows:

R302.2 Townhouses. Common walls separating townhouses shall be assigned a fire-resistance rating in accordance with Section R302.2, Item 1 or 2. The common wall shared by two townhouses shall be constructed without plumbing or mechanical equipment, ducts, or vents in the cavity of the common wall. The wall shall be rated for fire exposure from both sides and shall extend to and be tight against exterior walls and the underside of the roof sheathing. Electrical installation shall be in accordance with the Electrical Code. Penetrations of the membrane of common walls for electrical outlet boxes shall be in accordance with Section R302.4.

1. Where a fire sprinkler system in accordance with NFPA 13D is provided, the common wall shall be not less than a 1-hour fire-resistance-rated wall assembly tested in accordance with ASTM E 119 or UL 263.

2. Where a fire sprinkler system in accordance with NFPA 13D is not provided, the common wall shall be not less than a 2-hour fire -resistance-rated wall assembly tested in accordance with ASTM E 119 or UL 263 or the common wall shall be two independent 1-hour fire-resistance-rated wall assemblies.

Change Section R303.5.2 to read as follows:

R303.5.2 Exhaust Openings. Exhaust air shall not be directed below six feet, eight inches onto public walkways.

Change Section R303.8 to read as follows:

R303.8 Exterior Stairway Illumination. Exterior stairways shall be provided with an artificial light source located at the top landing of the stairway or at an adjacent wall if the stair serves an uncovered deck or stoop. Exterior stairways providing access to a basement from the outdoor grade level shall be provided with an artificial light source located at the bottom landing of the stairway.

Section 309 Garages, carports and off-street parking.

Section R309.6 shall be added:

R309.6 Electric vehicle charging stations. Single dwelling units with a garage, carport or off-street parking space shall have a minimum of one EV Ready parking space. When Electric Vehicle Supply Equipment is installed it shall be in accordance with the UL 2594. Electrical vehicle charging system equipment shall be listed and labeled in accordance with UL 2202.

Exception: Detached garages, carports and off-street parking spaces fifty feet and greater distance from the main structure measured from the exterior of the structure to the edge of the garage/carport or parking surface are exempt from the requirements set forth herein, as are existing dwellings with insufficient electrical service capacity.

Section R309.6 shall apply to Level 3 alterations on January 1st, 2024, and thereafter.

Change Section R311.3.2 to read as follows:

R311.3.2 Floor Elevations for Other Exterior Doors. Doors other than the required egress door shall be provided with landings or floors not more than 8¼ inches below the top of the threshold.

Exception: A top landing is not required where a stairway of not more than four risers is located on the exterior side of the door, provided that the door does not swing over the stairway.

Change Sections R311.7.5.1 and R311.7.5.2 to read as follows:

311.7.5.1 Riser. The riser height shall be not more than 8¼ inches. The riser shall be measured vertically between leading edges of the adjacent treads. The greatest riser height within any flight of stairs shall not exceed the smallest by more than ⅜ inch. Risers shall be vertical or sloped from the underside of the nosing of the tread above at an angle not more than 30 degrees from the vertical. Open risers are permitted provided that the openings located more than 30 inches, as measured vertically, to the floor or grade below do not permit the passage of a 4-inch-diameter sphere.

Exceptions:

1. The opening between adjacent treads is not limited on spiral stairways.

2. The riser height of spiral stairways shall be in accordance with Section R311.7.10.1.

R311.7.5.2 Treads. The tread depth shall be not less than 9 inches. The tread depth shall be measured horizontally between the vertical planes of the foremost projection of adjacent treads and at a right angle to the tread's leading edge. The greatest tread depth within any flight of stairs shall not exceed the smallest by more than ⅜ inch.

R311.7.5.2.1 Winder Treads. Winder treads shall have a tread depth of not less than 9 inches measured between the vertical planes of the foremost projection of adjacent treads at the intersections with the walkline. Winder treads shall have a tread depth of not less than 6 inches at any point within the clear width of the stair. Within any flight of stairs, the largest winder tread depth at the walkline shall not exceed the smallest winder tread by more than ⅜ inch. Consistently shaped winders at the walkline shall be allowed within the same flight of stairs as rectangular treads and do not have to be within ⅜ inch of the rectangular tread depth.

Exception: The tread depth at spiral stairways shall be in accordance with Section R311.7.10.1.

Change Sections R313.1 through R313.2.1 to read as follows:

R313.1 Townhouse Automatic Fire Sprinkler Systems. A builder of townhouse units shall offer to any purchaser on or before the time of entering into the purchase contract the option, at the purchaser's expense, to install or equip fire sprinklers in the townhouse unit. No purchaser of such a townhouse unit shall be denied the right to choose or decline to install a fire sprinkler system in such townhouse being purchased.

Exception: An automatic residential fire sprinkler system shall not be required where additions or alterations are made to existing townhouses that do not have an automatic residential fire sprinkler system installed.

R313.1.1 Design and Installation. Automatic residential fire sprinkler systems for townhouses shall be designed and installed in accordance with the Plumbing Code or NFPA 13D.

R313.2 One- and Two-Family Dwellings Automatic Fire Systems. A builder of single-family dwellings or residences or multi-unit dwellings of four or fewer units shall offer to any purchaser on or before the time of entering into the purchase contract the option, at the purchaser's expense, to install or equip fire sprinklers in the dwelling, residence or unit. No purchaser of such a single-family dwelling, residence, or multi-unit dwelling shall be denied the right to choose or decline to install a fire sprinkler system in such dwelling or residence being purchased.

Exception: An automatic residential fire sprinkler system shall not be required for additions or alterations to existing buildings that are not already provided with an automatic residential sprinkler system.

R313.2.1 Design and Installation. Automatic residential fire sprinkler systems shall be designed and installed in accordance with the Plumbing Code or NFPA 13D.

Change Section R319.1 to read as follows:

R319.1 Premises Identification. Approved numbers or addresses shall be provided for all new buildings in such a position as to be plainly visible and legible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of four inches high with a minimum stroke width of ½ inch.

If there is an alley, numbers shall also be placed on the alley elevation of the premises on which the house,

building or structure is located. If there is a garage or carport fronting on an alley, house numbers shall also be placed on the alley elevation of the garage or carport.

Change Section R322.1.7 to read as follows:

R322.1.7 Protection of Water Supply and Sanitary Sewer Systems. New and replacement water supply systems shall be designed to minimize or eliminate infiltration of flood waters into the systems in accordance with the provisions of the Plumbing Code. New and replacement sanitary sewer systems shall be designed to minimize or eliminate infiltration of floodwaters into systems and discharge from systems into floodwaters in accordance with the Plumbing Code.

Add Sections R328 and R329 to read as follows:

SECTION R328 MODULAR UNITS

R328.1 Regulatory Authority. Modular units intended for use as permanent structures shall conform to Chapter 700 of the Revised Statutes of Missouri. All on-site construction or alterations such as site work, foundations, porches, stairs, accessory buildings, and other alterations required to complete the construction of the modular unit shall conform to this Code, the Electrical, Mechanical, and Plumbing Codes, and the City of St. Louis Zoning Code.

R328.2 Permits. In order to obtain a building permit to construct a permanent building as real property utilizing a modular unit, the following information shall be required:

1. A completed building permit application;

2. Five complete sets of construction drawings prepared, sealed, and signed by a Missouri licensed design professional as required by RSMo Ch. 327 showing all on-site construction:

A. Site plan indicating the City block, lot number and subdivision, location of the modular unit on the lot, location of any accessory structure, dimensions around the unit perimeter and to the property lines and building lines, and proposed drainage pattern;

B. Foundation plans indicating the length and width of the foundation, reinforcing, size and location of structural system (beams, columns, and footings), and method of attachment used to connect the modular unit to the foundation. The foundation system shall extend down to the frost line. In almost all cases it is necessary to include or incorporate the manufacturer's unit drawings to verify compatibility with the proposed foundation relative to the transferred loads, anchors, etc.;

C. Basement stair plan, section, and details, if applicable;

D. Floor plans indicating any changes to the manufacturer's unit drawings. Indicate smoke detector locations. Smoke detectors shall be AC powered with battery back-up and interconnected throughout. Vent interior bathrooms, dryers, and range hoods to the exterior;

E. Exterior porch, sun-deck, ramp, step, or stair plans, sections, and details, if applicable;

F. Elevations indicating any changes to the manufacturer's unit drawings such as location of door and window openings, exterior siding or veneer, soffit, rake and fascia boards, gutters, and downspouts. Downspouts shall conform to the Plumbing Code;

G. Wall section or building section indicating size of footing and foundation wall, reinforcing, depth of footing below finished grade, method of attachment used to connect the modular unit to the foundation and to other units, exterior siding or veneer material, soffit, rake and fascia board, gutters, and downspouts. Indicate floor-to-floor dimensions.

3. Verification of the Missouri Public Service Commission seal identification number or U.S. Department of Housing and Urban Development (HUD) label, or its agent, is required to be submitted prior to issuance of the building permit to verify compliance with the current state codes.

Separate permits are required for mechanical, electrical, plumbing, sprinklers, and fire alarms, if applicable.

R328.3 Inspections. The Division of Building and Inspection will make no inspection of individual modular units themselves nor assume any responsibility for their code compliance. The Division of Building and Inspection will review, approve, and inspect all on-site construction and alterations required to setup a modular unit as a permanent building and real property.

SECTION R329 TINY HOUSES

R329.1 General. Detached single-family dwellings and multiple attached single-family dwellings with a gross floor area of less than 400 square feet shall conform to this section.

R329.2 Construction. Tiny houses intended to be used as a dwelling unit shall be anchored to an ap-

proved foundation. Manufactured tiny houses constructed on a permanent chassis with wheels by either the manufacturer or owner and which have an affixed HUD or FHA certification tag may be located in a designated house-trailer park for mobile homes. All other tiny houses constructed on wheels will be considered as similar to RVs intended for occasional recreational use and not allowed to be used as a dwelling unit or mobile home for living purposes.

R329.3 Light, Ventilation, and Occupancy Limitations. Tiny houses shall conform to Chapter 4 of the Property Maintenance Code for light, ventilation, room size, ceiling height, and occupant load. Tiny houses may be designed as efficiency units in compliance with Section 404.6 of the Property Maintenance Code.

R329.4 Means of Egress. Vertical egress from habitable levels shall be by a 36-inch-wide stairway having a maximum riser height of 8¼ inches and a minimum tread depth of 9 inches and minimum 5 feet 8 inches headroom measured vertically. Winder treads and spiral stairs complying with Section R311 are permitted. Ladders are not permitted. Hallways, if provided, shall be not less than 36 inches wide.

R329.5 Utility Connections. Tiny houses intended for use as dwelling units shall have permanent connections to public utilities.

1. *Mechanical.* Heat and hot water shall be provided. Space shall be provided for mechanical equipment and hot water appliances to maintain required clearances to combustible materials and to provide access for maintenance. A minimum of 30 inches of clearance is required at the front of the appliance for service.

2. *Electrical.* An electrical system connected to the public utility shall be provided. Circuit breaker panels shall not be concealed and are not permitted in a bedroom, bathroom, or clothes closet. A minimum 36 inch deep by 30-inch-wide unobstructed clearance area having a minimum 6 feet 6 inches headroom is required in front of electric panels. Doors cannot open towards an electrical panel. Counters and cabinets cannot be installed under the electrical panel.

3. *Plumbing.* All plumbing fixtures shall be connected to the public sanitary sewer system. Water supply to all plumbing fixtures shall be connected to the public water system.

R329.6 Modular Units as Tiny Houses. Modular units intended to be occupied as tiny houses shall conform to Section R328.

R329.6.1 Off-site construction. For tiny houses constructed off site that are not manufactured units, five complete sets of construction drawings prepared, sealed, and signed by a Missouri licensed design professional as required by RSMo Ch. 327 shall be submitted and a building permit obtained prior to the start of construction. The architect shall submit a sealed, signed, and dated statement affirming that the structure was built in conformance with all City of St. Louis construction codes or a third-party inspection shall be provided from a reputable inspection agency to the building inspector prior to placement of the structure on its foundation.

CHAPTER 4 IS AMENDED AS FOLLOWS:

Change Section R403.1.4.1 to read as follows:

R403.1.4.1 Frost Protection. Except where otherwise protected from frost, foundation walls, piers, and other permanent supports of buildings and structures shall be protected from frost by one or more of the following methods:

1. Extend 30 inches minimum below finished grade.
2. Constructing in accordance with Section R403.3.
3. Constructing in accordance with ASCE 32-01.
4. Erecting on solid rock.

Exception: Freestanding accessory structures with an area of 200 square feet or less and an eave height of twelve feet or less shall not be required to be protected.

Change Section R 404.1.3.2 to read as follows:

R404.1.3.2 Reinforcement for Foundation Walls. Concrete foundation walls shall be laterally supported at the top and bottom. Horizontal reinforcement shall be provided in accordance with Table R404.1.2(1). Vertical reinforcement shall be provided in accordance with Table R404.1.2(2), R404.1.2(3), R404.1.2(4), R404.1.2(5), R404.1.2(6), R404.1.2(7), or R404.1.2(8). Vertical reinforcement for flat basement walls retaining four (4) feet or more of unbalanced backfill is permitted to be determined in accordance with Table R404.1.2(9). For basement walls supporting above-grade concrete walls, vertical reinforcement shall be the greater of that required by Tables R404.1.2(2) through R404.1.2(8) or by Section R608.6 for the above-grade wall. In buildings assigned to Seismic Design Category D0, D1, or D2, concrete foundation walls shall also comply with Section R404.1.4.2.

Exceptions:

1. Where unstable soil or ground water conditions do not exist, plain concrete foundation walls may be constructed a minimum of eight inches thick where the wall height from the top of the footing to the top of the

wall does not exceed eight feet and when the unbalanced backfill height from the top of the basement slab to the finished grade immediately adjacent to the wall does not exceed seven feet. A minimum of two No. 4 horizontal reinforcing bars shall be provided in the top and bottom of plain concrete foundation walls. A minimum of two No. 5 reinforcing bars shall be provided around all window and door openings in plain concrete foundation and basement walls. Bars shall extend a minimum 24 inches beyond the corners of the openings.

2. Where unstable soil or ground water conditions do not exist, plain concrete foundation walls may be constructed a minimum of ten inches thick where the wall height from the top of the footing to the top of the wall does not exceed nine feet and when the unbalanced backfill height from the top of the basement slab to the finished grade immediately adjacent to the wall does not exceed eight feet. A minimum of two No. 5 reinforcing bars shall be placed horizontally in the top, middle, and bottom of the foundation wall.

3. Where unstable soil or ground water conditions do not exist, plain concrete foundation walls may be constructed a minimum of ten inches thick where the wall height from the top of the footing to the top of the wall does not exceed eight feet and when the unbalanced backfill height from the top of the basement slab to the finished grade immediately adjacent to the wall does not exceed eight feet. A minimum of two No. 5 reinforcing bars shall be placed horizontally in the top, middle, and bottom of the foundation wall.

Change Section R405.1 to read as follows:

R405.1 Concrete or Masonry Foundations. Drains shall be provided around all concrete or masonry foundations that retain earth and enclose habitable or usable spaces located below grade. Drainage tile, gravel, or crushed stone drains, perforated pipe, or other approved systems or materials shall be installed at or below the area to be protected and shall discharge to an approved sump, fifteen inches in diameter and eighteen inches deep with fitted cover. A sump located in a space containing a finished area shall have a sump pump and piping installed to discharge the water to a separate storm (not sanitary) lateral, or if approved, to the ground surface a minimum of 6 feet away from the building. Gravel or crushed stone drains shall extend at least one foot beyond the outside edge of the footing and six inches above the top of the footing and be covered with an approved filter membrane material. The top of the open joints of drain tiles shall be protected with strips of building paper, and the drainage tiles or perforated pipe shall be placed on a minimum of two inches of washed gravel or crushed rock at least one sieve size larger than the tile joint opening or perforation and covered with not less than six inches of the same material.

Drainage tiles, gravel, or crushed stone drains, perforated pipe, or other approved system shall be placed on both the inside and the outside of foundations in areas where a high water table or other severe soil-water conditions exist or where water is present in the excavation. The drainage system shall discharge to an approved sump having a sump pump and piping to discharge the water to a separate storm (not sanitary) lateral, or if approved, to the ground surface a minimum of six feet away from the building.

Exception: A drainage system is not required where the foundation is installed on well-drained ground or sand-gravel mixture soils according to the Unified Soil Classification System, Group I Soils, as detailed in Table R405.1

CHAPTER 6 IS AMENDED AS FOLLOWS:

Delete Section 602.7.5 and Table 602.7.5.

CHAPTER 8 IS AMENDED AS FOLLOWS:

Change Section R802.10.2 to read as follows:

R802.10.2 Design. Wood trusses shall be designed in accordance with accepted engineering practice. The design and manufacture of metal-plate-connected wood trusses shall comply with ANSI/TPI 1. The truss design drawings shall be prepared and sealed by a Missouri licensed professional engineer.

CHAPTER 9 IS AMENDED AS FOLLOWS:

Change Section R903.4.1 to read as follows:

R903.4.1 Secondary (Emergency Overflow) Drains or Scuppers. Where roof drains are required, secondary emergency overflow roof drains or scuppers shall be provided where the roof perimeter construction extends above the roof in such a manner that water will be entrapped if the primary drains allow buildup for any reason. Overflow drains having the same size as the roof drains shall be installed with the inlet flow line located 2 inches above the low point of the roof, or overflow scuppers having three times the size of the roof drains and having a minimum opening height of 4 inches shall be installed in the adjacent parapet walls with the inlet flow located 2 inches above the low point

of the roof served. The installation and sizing of overflow drains, leaders and conductors shall comply with the Plumbing Code, as applicable

Overflow drains shall discharge to the approved location and shall not be connected to roof drain lines.

Change Section R905.2.8.2 to read as follows:

R905.2.8.2 Valleys. Valley linings shall be installed in accordance with the manufacturer's instructions before applying shingles. Valley linings of the following types shall be permitted:

1. For open valleys (valley lining exposed) lined with metal, the valley lining shall be at least 24 inches wide and of any of the corrosion-resistant metals in table R905.2.8.2.

2. For open valleys, valley lining of two plies of mineral surfaced roll roofing complying with ASTM D 3909 or ASTM D 6380 Class M shall be permitted. The bottom layer shall be eighteen inches and the top layer a minimum of 36 inches wide.

3. For closed valleys (valley covered with shingles), valley lining of one ply of smooth roll roofing complying with ASTM D 6380, or two plies of No. 15 building paper complying with ASTM D 226 Type I, ASTM D 4869 Type I, or ASTM D 6757 and at least 36 inches wide, or valley lining as described in Item 1 or 2 above shall be permitted. Self-adhering polymer modified bitumen underlayment complying with ASTM D 1970 shall be permitted in lieu of the lining material.

Change Section R905.2.8.5 to read as follows:

R905.2.8.5 Drip Edge. A drip edge shall be provided at eaves and rake edges of shingle roofs where required as a condition of the shingle manufacturer's warranty. Adjacent segments of drip edge shall be overlapped not less than 2 inches. Drip edges shall extend not less than ¼ inch below the roof sheathing and extend up back onto the roof deck not less than 2 inches. Drip edges shall be mechanically fastened to the roof deck at not more than 12 inches o.c. with fasteners as specified in Section R905.2.5. Underlayment shall be installed over the drip edge along eaves and under the drip edge along rake edges.

CHAPTER 11 IS AMENDED AS FOLLOWS:

Change data for Climate Zone 4 in Table N1102.1.1 to read as follows:

Table N1102.1.1 (R402.1.2)

INSULATION AND FENSETRATION REQUIREMENTS BY COMPONENT[a]

CLIMATE ZONE	FENESTRATION U-FACTOR [b]	SKYLIGHT[b] U-FACTOR	GLAZED FENESTRATION SHGC[b,c]	CEILING R-VALUE	WOOD FRAME WALL R-VALUE
1	NR	0.75	0.25	30	13
2	0.40	0.65	0.25	38	13
3	0.32	0.25	0.25	38	20 or 13 +5 h
4 except Marine	0.32	0.55	0.40	38	20 or 13 +5 h
5 and Marine 4	0.30	0.55	NR	49	20 or 13 +5 h
6	0.30	0.55	NR	49	20 + 5h or 13 + 10 h
7 and 8	0.30	0.55	NR	49	20 + 5h or 13 + 10 h

MASS WALL R-VALUE[i]	FLOOR R-VALUE	BASEMENT[c] WALL R-VALUE	SLAB[d] R-VALUE & DEPTH	CRAWL SPACE[c] WALL R-VALUE
3/4	13	0	0	0
4/6	13	0	0	0
8/13	19	5/13	0	5/13
8/13	19	0	10, 2 ft	10/13
13/17	30g	15/19	10, 2 ft	15/19
15/20	30g	15/19	10, 4 ft	15/19
19/21	38g	15/19	10, 4 ft	15/19

For SI: 1 foot = 304.8 mm.

NR = Not required.

a. R-values are minimum. U-factors and SHGC are maximums. Where insulation is installed in a cavity that is less than the label or design thickness of the installation, the installed R-value of the insulation shall be not less than the R-value specified in the table.

MASS WALL R-VALUE[i]	FLOOR R-VALUE	BASEMENT[c] WALL R-VALUE	SLAB[d] R-VALUE & DEPTH	CRAWL SPACE[c] WALL R-VALUE

b. The fenestration U-factor column excludes skylights. The SHGC column applies to all glazed fenestration. Exception: In Climate Zones 1 through 3, skylights shall be permitted to be excluded from glazed fenestration SHGC requirements provided that the SHGC for such skylights does not exceed 0.30.

c. "10/12" means R-10 continuous insulation on the interior or exterior of the home or R-13 cavity insulation on the basement wall. "15/19" mean R-15 continuous insulation on the interior or exterior of the home or R19 cavity insulation on the interior of the basement wall. Alternatively, compliance with "15/19" shall be R-13 cavity insulation on the interior of the basement wall with plus R-5 continuous insulation on the interior or exterior of the home.

d. R-5 insulation shall be provided under the full slab area of a heated slab in addition to the required slab edge insulation R-value for slabs, as indicated in the table. The slab edge insulation for heated slabs shall not be required to extend below the slab.

e. There are no SHGC requirements in then Marine Zone.

f. Basement wall insulation shall not be required in warm-humid locations defined by Figure N1101.10 and Table 1101.10.

g. Alternatively, insulation sufficient to fill the framing cavity providing not less than an R-value of R-19.

h. The first value is cavity insulation, the second value is continuous insulation. Therefore, as an example, "13+5" means R-13 cavity insulation plus R-5 continuous insulation.

i. Mass walls shall be in accordance with Section N1102.2.5. The second R-value applies where more than half of the insulation is on the interior of the mass wall.

Delete Section 1102.4.5.

CHAPTERS 12 thru 43 ARE AMENDED AS FOLLOWS:

Delete Chapters 12 thru 23. Refer to the Mechanical Code

Delete Chapter 24. Refer to the Fuel Gas Code.

Delete Chapters 25 thru 33. Refer to the Plumbing Code.

Delete Chapters 34 thru 43. Refer to the Electrical Code.

CHAPTER 44 IS AMENDED AS FOLLOWS:

Modify Chapter 44 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

Table R301.2(1), R313.1.1, R313.2.1, R322.1.7, R903.4.1

Appendices E, F, G, H, J, K, M, R, S, and T are hereby adopted.

(Ord. No. 71990, § 3, 2-25-2025; Ord. No. 71285, §§ 1—3, 2-11-2021; Ord. No. 70795, § 3, 7-6-2018.)

25.11.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, shall be subject to, a fine as set forth in Section 25.33.040. Each day that a violation continues shall constitute a separate and distinct offense.

(Ord. No. 71990, § 2, 2-25-2025; Ord. No. 70795, § 4, 7-6-2018.)

Chapter 25.12

CONTRACTORS TO POST SIGNS

City Counselor Ops.: 8769

Sections:

25.12.010 Specifications of signs.

25.12.020 Definitions.

25.12.010 Specifications of signs.

Every contractor and subcontractor erecting, altering, repairing, with the exception of minor repairs, repairs, removing or demolishing of any building or other structure for which a building permit is required under the provisions of the Building Code of the City to place and maintain a sign on the front of the premises where such work is being performed at least two (2) feet in height and two (2) feet in width, setting forth in letters of at least two (2) inches in height and two (2) inches in width the name, address and telephone number of the contractor or subcontractor thereon during the period of time from the beginning of such work until the completion of such work by such contractor or subcontractor. (1960 C., § 410.010; 1994 C., § 25.12.010; Ord. No. 50062, § 1, 1960.)

25.12.020 Definitions.

The term of "contractor" for the purpose of this chapter shall mean the person, firm or corporation engaged by the owner of the property, his agent, lessee or tenant to perform work requiring a building permit. The term "subcontractor" shall mean the person, firm or corporation engaged by the contractor to perform a part or portion of the work to carry out the terms of the contract or agreement with the owner, his agent, tenant or lessee of the owner. (1960 C., § 410.020; 1994 C., § 25.12.020; Ord. No. 50062, § 2, 1960.)

Chapter 25.13

ENERGY CONSERVATION CODE

Editor's Note:

Ord. No. 70799, adopted July 6, 2018, adopting the 2018 International Energy Conservation Code with amendments, repealed and replaced Ordinance No. 68792. Ord. No. 68792, adopted Nov. 8, 2010, repealed Ch. 25.13 and enacted a new chapter. The former Ch. 25.13, §§ 25.13.010—25.13.040, pertained to similar subject matter and derived from Ord. No. 66786, §§ 2—4, 2005.

Sections:

25.13.010 Adoption.
25.13.020 Amendments.
25.13.030 Penalty.

25.13.010 Adoption.

The 2018 International Energy Conservation Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Energy Conservation Code, is hereby adopted as the Energy Conservation Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with Section 71.943 RSMo; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Energy Conservation Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.13.020. If differences occur between a provision modified by this chapter and a provision adopted without modification, then the modified provision shall control. (Ord. No. 70799, § 2, 7-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.13.020 Amendments.

The 2018 International Energy Conservation Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Change Section C101.1 to read as follows:

C101.1 Title. These regulations shall be known as the Energy Conservation Code of the City of Saint Louis, hereafter referred to as "this code."

CHAPTER 2 IS AMENDED AS FOLLOWS:

Change Section C201.3 to read as follows:

C201.3 Terms defined in other codes. Terms that are not defined in this code but are defined in the Building Code, the Fire Code, the Fuel Gas Code, the Mechanical Code, the Residential Code, or the Plumbing Code shall have the meanings ascribed to them in those codes.

CHAPTER 5 IS AMENDED AS FOLLOWS:

Change Section C501.4 to read as follows:

C501.4 Compliance. Alterations, repairs, additions and changes of occupancy to, or relocation of, existing buildings and structures shall comply with the provisions for alterations, repairs, additions and changes of occupancy or relocation, respectively, in this code and in the Building Code, the Existing Building Code, the Fire Code, the Fuel Gas Code, the Mechanical Code, the Property Maintenance Code, the Residential Code, the Plumbing Code and NFPA 70.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Modify Chapter 6 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-14-Uniform Plumbing Code

C201.3, C501.4

CHAPTERS R1-R6 ARE AMENDED AS FOLLOWS:

Delete Residential Provisions, Chapters R1-R6. Refer to the Residential Code for One-and Two-Family Dwellings.

The 2018 International Energy Conservation Code is hereby amended by the addition of Appendix CA (Solar Ready Zone - Commercial) and Appendix RA (Solar Ready Zone -Residential). These Appendices are attached to Ord. No. 71063 as Exhibit A, and are incorporated by reference into the International En-

ergy Conservation Code of the City of St. Louis. (Ord. No. 71063, § 1, 12-23-2019; Ord. No. 70799, § 3, 7-6-2018.)

25.13.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, and shall, upon conviction thereof, be punished by a fine of not more than $500.00, or by imprisonment not exceeding 90 days, or both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense. (Ord. No. 70799, § 4, 7-6-2018.)

Chapter 25.16

FLOOD DAMAGE BUILDING PRECAUTIONS

Sections:

25.16.010 Review of building permit applications.

25.16.020 Recommendations by Building Commissioner.

25.16.030 Requirements for proposed construction.

25.16.040 Board of Public Service—Determinations.

25.16.050 Land use and control measures—Enactment.

25.16.060 Duties of Director of Public Safety.

25.16.070 Implementation of chapter commitments.

25.16.010 Review of building permit applications.

The Building Commissioner for the City when reviewing applications for building permits, including the plans and specifications for the proposed construction, will review all building permit applications to determine if the proposed construction is consistent with the need to minimize flood damage. (1994 C., § 25.16.010; Ord. No. 56632, § 1, 1973.)

25.16.020 Recommendations by Building Commissioner.

The Building Commissioner shall review all building permit applications to determine if the site of the proposed construction is reasonably safe from flooding and to make recommendations for construction in all locations which have flood hazards. (1994 C., § 25.16.020; Ord. No. 56632, § 2, 1973.)

25.16.030 Requirements for proposed construction.

The Building Commissioner, in reviewing all applications for construction in flood hazard locations within the City, shall require that any such proposed construction must:

A. Be designed and anchored to prevent the flotation, collapse or lateral movement of the structure or portions of the structure due to flooding.

B. Use construction materials and utility equipment that are resistant to flood damage.

C. Use construction methods and practices that will minimize flood damage.

D. Provide adequate drainage in order to reduce exposure to flood hazards.

E. Locate public utilities and facilities on the site in such a manner as to be elevated or constructed to minimize or eliminate flood damage, such utilities and facilities including sewer, gas, electrical and water systems. (1994 C., § 25.16.030; Ord. No. 56632, § 3, 1973.)

25.16.040 Board of Public Service—Determinations.

The Board of Public Service, in addition to the duties imposed by Article XIII, Section 4(d) of the City Charter*, in reviewing all applications for additions or subdivisions, shall make finding of fact and determine if:

A. All such proposed developments are consistent with the need to minimize flood damage.

B. Adequate drainage is provided so as to reduce exposure to flood hazards.

C. Adequate drainage is provided so as not to increase the exposure to flood hazards of adjacent lands.

D. All public utilities and facilities are located, elevated and constructed so as to minimize or eliminate flood damage, these utilities and facilities to include sewer, gas, electrical and water systems. (1994 C., § 25.16.040; Ord. No. 56632, § 4, 1973.)

***Editor's note**—It appears the reference intended was Article XIII, Section 5(d) of the City Charter. There is no Article XIII, Section 4(d).

25.16.050 Land use and control measures—Enactment.

There is given assurance to the Federal Insurance Administration that the Board of Aldermen will enact and maintain in force for those areas subject to periodic flooding adequate land use and control measures with effective enforcement provisions consistent with the National Flood Insurance Regulations. (1994 C., § 25.16.050; Ord. No. 56633, § 1, 1973.)

25.16.060 Duties of Director of Public Safety.

In addition to his other duties, the Director of Public Safety shall be and is delegated, insofar as lawfully possible, the responsibility, authority and means, in cooperation with all other City officials and employees:

A. To delineate or assist the Administrator of the National Flood Insurance Program, at his request, in delineating the limits of the areas having special flood hazards on available local maps of sufficient scale to identify the location of building sites.

B. To provide such information as the Administrator may request concerning present uses and occupancy of the floodplain areas.

C. To maintain for public inspection and furnishing upon request, with respect to each area having special flood hazards, information on elevations, in relation to mean sea level, of the lowest floors of all new or substantially improved structures.

D. To cooperate with federal, state and local agencies and private firms which undertake to study, survey, map or identify floodplain areas, and cooperate with neighboring communities with respect to planning for management of adjoining floodplain areas in order to prevent aggravation of existing hazards.

E. To submit on the anniversary date of initial eligibility under the National Flood Insurance Program an annual report to the Administrator on the progress made during the past year within the City in the development and implementation of floodplain area management measures.

F. To take such other official action as may be reasonably necessary to carry out the objectives of the program. (1994 C., § 25.16.060; Ord. No. 56633, § 2, 1973.)

RSMo:

RSMo 70.330 (2016) Cooperation with United States for flood control

25.16.070 Implementation of chapter commitments.

The Director of Public Safety shall be responsible for, and is hereby vested with, the authority and means to implement all commitments made herein. (1994 C., § 25.16.070; Ord. No. 56633, § 3, 1973.)

Chapter 25.20

EXISTING BUILDING CODE

Editor's Note:

Ord. No. 70797, adopted July 6, 2018, adopting the 2018 International Existing Building Code with amendments, including Appendices A, B, and C; repealed and replaced Ordinance No. 68790. Ord. No. 68790, adopted Nov. 8, 2010, repealed Ch. 25.20 and enacted a new chapter. The former Ch. 25.20, §§ 25.20.010—25.20.370, pertained to similar subject matter and derived from Ord. No. 66788, §§ 2—4, 2005.

Prior ordinance history: Ord. 65927

Sections:

25.20.010 Adoption.
25.20.020 Amendments.
25.20.030 Penalty.

25.20.010 Adoption.

The 2018 International Existing Building Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and designated as the International Existing Building Code, including Appendices A, B, and C, is hereby adopted as the Existing Building Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.493 for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Existing Building Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.20.020. If differences occur between a provision modified by this chapter and a provision adopted without modifications, then the modified provision shall control. (Ord. No. 70797, § 2, 7-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.20.020 Amendments.

The 2018 International Existing Building Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add new Chapter 1 to read as follows:

CHAPTER 1

SCOPE AND ADMINISTRATION

SECTION 101 GENERAL

101.1 Title. These regulations shall be known as the Existing Building Code of the City of Saint Louis, hereinafter referred to herein as "this code."

101.2 Scope. The provisions of this code shall apply to the repair, alteration, change of occupancy, addition to, and relocation of existing buildings.

Exceptions:

1. Live/work units complying with the requirements of Section 419 of the Building Code shall be permitted to be built as one- and two-family dwellings or townhouses. Fire suppression required by Section 419.5 of the Building Code when constructed under the Residential Code for One- and Two-family Dwellings shall conform to Section 903.3.1.3 of the Building Code.

2. Owner-occupied lodging houses with five or fewer guest rooms shall be permitted to be constructed in accordance with the Residential Code for One- and Two-Family Dwellings when equipped with a fire sprinkler system in accordance with Section 903.3.1.3 of the Building Code.

101.3 Intent. The purpose of this code is to establish the minimum requirements to safeguard the public health, safety, and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide a reasonable level of safety to fire fighters and emergency responders during emergency operations.

101.4 Applicability. This code shall apply to the repair, alteration, change of occupancy, addition and relocation of existing buildings, regardless of occupancy, subject to the criteria of Sections 101.4.1 and 101.4.2.

101.4.1 Buildings not previously occupied. A building or portion of a building that has not been previously occupied or used for its intended purpose, in

accordance with the laws in existence at the time of its completion, shall be permitted to comply with the provisions of the laws in existence at the time of its original permit unless such permit has expired. Subsequent permits shall comply with the International Building Code or International Residential Code, as applicable, for new construction.

101.4.2 Buildings previously occupied. The legal occupancy of any building existing on the date of adoption of this code shall be permitted to continue without change, except as specifically covered in this code, the International Fire Code, or the International Property Maintenance Code, or as deemed necessary by the code official for the general safety and welfare of the occupants and the public.

101.5 Safeguards During Construction. Construction work covered in this code, including any related demolition, shall comply with the requirements of Chapter 15.

101.6 Appendices. The code official is authorized to require retrofit of buildings, structures or individual structural members in accordance with the appendices of this code if such appendices have been individually adopted. For purposes of this code, Appendices A, B and C are adopted.

101.7 Correction of Violations of Other Codes. Repairs or alterations mandated by any property, housing, or fire safety maintenance code or mandated by any licensing rule or ordinance adopted pursuant to law shall conform only to the requirements of that code, rule or ordinance and shall not be required to conform to this code unless the code requiring such repair or alteration so provides.

SECTION 102 APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

102.2 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law. Where the provisions of this code conflict with other ordinances or regulations, the most stringent requirements shall apply. The building official shall not be the enforcement officer for such other ordinances or regulations unless specified therein.

102.3 Application of References. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this code.

102.4 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2. Referenced standards shall be permitted to be updated by rule making authority of the building official.

Exception: Where enforcement of a code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing and manufacturer's instructions shall apply.

102.4.1 Conflicts. Where conflicts occur between provisions of this code and referenced codes and standards, the provisions of this code shall apply.

102.4.2 Provisions in Referenced Codes and Standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard.

102.5 Appendices. Provisions of the appendices shall not apply unless specifically referenced in the adopting ordinance.

102.6 Partial Invalidity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.7 Existing Structures. The legal occupancy of any structure existing on the date of the adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the Existing Building Code, the Property Maintenance Code, or the Fire Code, or as deemed necessary by the building official for the general safety and welfare of the occupants and the public.

102.7.1 Additions, Alterations, or Repairs. Additions, alterations, or repairs to any structure shall conform to that required for a new structure without requiring the existing structure to comply with all of the requirements of this code, unless otherwise stated. Additions, alterations, repairs, and relocations shall not cause an existing structure to become unsafe or adversely affect the performance of the building.

102.7.2 Buildings Not Previously Occupied. A building or portion of a building that has not been

previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of the this code for new construction or with any current permit for such occupancy.

102.8 Matters Not Provided For. Any requirements that are essential for structural, fire, or sanitary safety of an existing or proposed building or structure, or for the safety of the occupants thereof, and which are not specifically provided for by this code, shall be determined by the building official.

The building official shall be permitted to delegate to the Department of the President, Board of Public Service, responsibility for code compliance inspections on projects within the City limits let by the Board of Public Service or let as an Emergency Agreement. If such delegation is made, that office shall certify in writing to the building official at the completion of the project that they did inspect and believe the project to comply with this code.

102.9 Buildings, Structures, or Premises Partly Within City Limits. When a building, structure, or premises is constructed partly within the City and partly within county limits, the Building Commissioner shall be authorized to enter into agreements with the adjoining code jurisdictions to avoid duplications of inspections, fees, and permits.

102.10 Restrictions. No building or structure shall be constructed, extended, repaired, removed, altered or occupied in violation of these provisions, except for repairs as defined in Section 105.2.2, and except further that the raising, lowering or moving of a building or structure as a unit necessitated by a change in legal grade or widening of a street shall be permitted, provided the building or structure is not otherwise altered or its occupancy changed. Political subdivisions of the State of Missouri, including, but not limited to, the Board of Education, Metropolitan Sewer District, Saint Louis Housing Authority, Saint Louis Police Department, Metro Transit, Planned Industrial Expansion Authority, Land Clearance for Redevelopment Authority, Land Reutilization Authority, Saint Louis Development Corporation, and the Regional Convention and Sports Complex Authority are covered under the provisions of this code for all property within the City limits.

Exceptions:

1. Structures owned and occupied by the United States of America or the State of Missouri.

2. City of Saint Louis-owned property located outside of the City Limits.

3. Existing building occupancies that are licensed by the State of Missouri as family child care homes providing home day care, as specified in Section 310.3.

4. Structures located within cemetery boundaries which are less than 1,000 square feet in area and less than 20 feet in height, measured from grade to the highest point.

5. Laying or relaying of railroad trackage sidings and their appurtenant signals, culverts and structures.

6. A construction project located in the public right-of-way (R.O.W.).

SECTION 103 DIVISION OF BUILDING AND INSPECTION

103.1 Creation of Enforcement Agency. There is hereby created the Division of Building and Inspection. The Division shall consist of Sections, including, but not limited to: Administration Section, Building Inspection Section, Central File Section, Court Section, Electrical Inspection Section, Mechanical Inspection Section, Permit Section, Plan Exam Section, Plumbing Inspection Section, and Zoning Section.

103.2 Building Commissioner. The head of the Division of Building and Inspection shall be known as the Building Commissioner, in accordance with Section 15, Article 13 of the Charter of the City of Saint Louis.

103.2.1 Appointment; Qualifications. The Building Commissioner, also herein referred to as the building official, shall be a Missouri licensed professional architect, or, a Missouri licensed professional engineer, or, shall have a bachelors degree in an appropriately related field with Certified Building Code Official status, or, shall have a masters degree in an appropriately related field and five years' experience in building code enforcement at a senior management level. The Building Commissioner shall be appointed by the Director of Public Safety.

103.3 Organization. The building official shall appoint such numbers of architects, engineers, technical assistants, inspectors and other employees such as clerks, typists, and cashiers as shall be necessary for the administration of the codes governed by this chapter, and as authorized by the building official in conformance with Civil Service qualifications and regulations. The building official shall be permitted to delegate appropriate subordinates to act in the exercise of the duties of this code, and they also shall be designated as building

officials. The building official is authorized to designate employees as needed who shall exercise all the powers of the building official during the temporary absence or disability of the building official.

103.4 Restriction of Employees. An official or employee connected with the Division of Building and Inspection, except one whose only connection is that of a member of the Board of Building Appeals, shall not be engaged in or directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building, or the preparation of construction documents therefor, unless that person is the owner of the building, or a first degree relative of the owner of the building; nor shall such officer or employee engage in any work which conflicts with official duties or with the interests of the Division of Building and Inspection.

Further, no Building Division employee shall be employed by or serve as an employee of any other division within the City service unless a formal request is made by the Building Commissioner to and approved by the appointing authority of that Division.

SECTION 104 DUTIES AND POWERS OF THE BUILDING OFFICIAL

104.1 General. The building official is hereby authorized and directed to enforce the provisions of this code. The building official shall have the authority to render interpretations of this code and adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall be in conformance with the intent and purpose of this code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

104.1.1 Rule Making Authority. The Building Commissioner shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code, to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code or violating accepted engineering practice involving public safety.

104.1.2 Accepted Engineering Practice. In the absence of provisions not specifically contained in this code, the regulations, specifications, and standards listed under referenced standards shall be deemed to represent accepted engineering practice in respect to materials, equipment, systems, or methods of construction.

104.2 Applications and Permits. The building official shall receive applications; review construction documents; issue or deny permits for the erection, alteration, demolition, moving, or occupancy of buildings, structures, or premises; inspect the premises for which such permits have been issued; and enforce compliance with the provisions of this code.

104.2.1 Preliminary Meeting. When requested by the permit applicant, the building official shall meet with the permit applicant to discuss plans for the proposed work or change of occupancy prior to the application for a permit in order to establish the specific applicability of the provisions of this code.

104.2.1.1 Building Evaluation. The building official is authorized to require an existing building to be investigated and evaluated by a licensed design professional based on the circumstances agreed upon at the preliminary meeting. The design professional shall notify the building official if any potential nonconformance with the provisions of this code is identified.

104.3 Notices and Orders. The building official shall issue all necessary notices or orders to ensure compliance with this code.

104.4 Inspections. The building official is authorized to make all of the required inspections, or the building official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority. The owner shall provide such special inspections as are required by the building official.

104.5 Identification. The building official shall carry proper identification when inspecting structures, or premises in the performance of duties under this code.

104.6 Right of Entry. Where it is necessary to make an inspection to enforce the provisions of this code or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous, or hazardous, the building official

or designee is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this code, provided that if such structure be occupied, that credentials be presented to the occupant and entry requested. If such structure or premises be unoccupied, the building official shall first make a reasonable effort to locate the owner, owner's authorized agent, or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall have recourse to the remedies provided by law to secure entry.

104.6.1 Disasters. In the event of a disaster such as windstorm, tornado, flood, fire, earthquake, bomb blast, or explosion, the building official is hereby authorized to enter and inspect structures within the affected area, subject to constitutional restrictions on unreasonable searches and seizures. When, in the opinion of the building official, there is imminent danger of an unsafe condition, the building official shall take emergency measures in accordance with this code. If the building official determines, after inspection, that a structure is unfit, the building official shall declare it a public nuisance, cause a report to be prepared, and notify the affected parties in accordance with this code.

104.6.1.1 Post-Disaster Inspections. The building official is authorized to deputize Missouri Structural Assessment and Visual Evaluation (SAVE) Volunteer Inspectors certified by the Missouri State Emergency Management Agency (SEMA) to conduct emergency post-disaster safety evaluations of buildings.

104.7 Department Records. An official record shall be kept of all business and activities of the department specified in the provisions of this code, and all such records shall be open to public inspection at all appropriate times.

A reasonable charge shall be established for making copies of documents. If staff time is required to assemble requested data, an estimate shall be made of personnel charges, including fringe benefits, and a signed agreement made prior to undertaking such projects. The Division of Building and Inspection is not obligated to assemble data into formats that it does not use or need in the ordinary prosecution of its work.

Further, whenever any person, firm, or corporation requests a comprehensive historical investigation of the Division of Building and Inspection records relating to building or occupancy permits, an application fee of $25.00 shall be charged as specified in Section 108.2.1 in addition to all other fees as provided in other sections of this code.

104.8 Liability. The building official, member of the Board of Building Appeals, or employee charged with the enforcement of this code, while acting for the City of Saint Louis in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered civilly or criminally liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties.

104.8.1 Legal Defense. Any suit or criminal complaint instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordinates shall not be liable for cost or judgment in any action, suit or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

104.9 Approved Materials and Equipment. Materials, equipment, and devices approved by the building official shall be constructed and installed in accordance with such approval.

104.9.1 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless they have been reconditioned, tested, and placed in good and proper working condition and approved by the building official.

104.10 Modifications. Wherever there are practical difficulties involved in carrying out provisions of this code, the building official shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative, provided the building official shall first find that special individ-

ual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life, and fire safety or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the Division of Building and Inspection.

104.10.1 Flood Hazard Areas. The building official shall not grant modifications to any provisions required in flood hazard areas unless a determination has been made that:

1. There is good and sufficient cause showing that the unique characteristics of the size, configurations, or topography of the site render the elevation standards of this code inappropriate.

2. Failure to grant the modification would result in exceptional hardship by rendering the lot undevelopable.

3. The granting of modification will not result in increased flood heights, additional threats to public safety, or extraordinary public expense; cause fraud on or victimization of the public; or conflict with existing laws or ordinances.

4. The modification is the minimum necessary to afford relief considering the flood hazard.

5. Written notice has been submitted to the applicant specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

104.11 Alternative Materials, Design, and Methods of Construction, and Equipment. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided any such alternative has been approved. An alternative material, design or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety.

104.11.1 Research Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

104.11.2 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the building official shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for the retention of public records.

104.11.3 Research and Investigations. The building official shall require that sufficient technical data be submitted to substantiate the proposed use of any material or assembly, and if it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the building official shall approve its use subject to the requirements of this code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant or owner.

104.12 Annual Report. The Building Commissioner shall submit to the Director of Public Safety a written annual report.

SECTION 105 PERMITS

105.1 Required. Any owner or owner's authorized agent who intends to perform site grading or excavation; to construct, enlarge, alter, make non-ordinary repairs to, move, or demolish a building or structure; to change the occupancy of a building, structure, or premises from one use group to another or to change to a prohibited use; or to cause any such work to be done; or to use explosives for blasting in connection with demolition, excavation, construction, or other building operation shall first make application to the building official and obtain the required permits.

Exception: No permit shall be issued to repair any building or structure condemned in accordance with Section 119 or 120 if such building or structure is included in an executed contract for demolition between the City of Saint Louis and a demolition contractor.

105.1.1 Preservation Board Permit Requirements. When the ordinances of the Cultural Resources Office

(CRO) of the Planning and Urban Design Agency (PUDA) require a permit for items for which this code does not require a permit, applications shall be permitted to be taken by the Division of Building and Inspection and processed solely to the Cultural Resources Office. Both the Building Commissioner and the Cultural Resources Office Director are authorized to place stop work orders. Any appeals or court actions resulting from such citations, applications, or permits shall have technical and aesthetic testimony from the Preservation Board and the staff of the Cultural Resources Office.

105.1.2 Cultural Resources Office Denial. Unless overruled by the Building Commissioner as a result of an emergency situation or the Planning and Urban Design Commission, a denial from the Preservation Board shall be the final denial; no further notice from the building official shall be required to any person.

105.1.3 Aggregation of Permits. All permits issued within any twelve-month period for work to be performed on an existing building shall be included in the calculation of a work area.

105.2 Work Exempt from Permit. Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of the City of Saint Louis. Permits shall not be required for the following:

1. Tuckpointing, ordinary or minor repair to exterior masonry, exterior painting, or similar repair or finish work;

2. Repair or replacement of existing gutters or above-grade portions of downspouts;

3. Recovering or replacing roof covering with the same type of roof covering to a maximum of two layers of roofing. Roofs having a pitch of ¼: 12 or greater but less than 4:12 (low slope roof) shall provide positive drainage. Replacement of 25% or less of roof sheathing;

4. Resealing or restriping of an existing paved parking parking lot, provided the restriping done matches the existing configuration and the number of spaces remain the same. A permit is required to restripe a parking lot for a new parking space and drive arrangement or configuration;

5. Miscellaneous site work, landscaping, gardens, shrubbery, or planting boxes; excavation or fill that does not create a permanent change in property elevation of more than six inches along property lines, block drainage, or create erosion or damage to adjacent properties;

6. Replacement of existing fencing of the same height, material, and location except when enclosing swimming pools, hot tubs, or spas;

7. Retaining walls eighteen inches or less in height above lowest adjacent grade;

8. Tents smaller than 1,000 square feet, or those used for private family events on the same lot as the owner's residence;

9. Statues on private property, erected on grade, not attached to or part of a building or structure;

10. Relining, repairing, patching or shotcreting existing swimming pool walls or floors provided required minimum water depths under diving boards, if present, are maintained;

11. Ordinary or minor repairs to exterior cantilevered balconies, decks, stairs, and fire escapes such as patching or replacing small areas of treads, risers, and platform surfaces; repairing or replacing components such as handrails, tread and riser, guardrail balusters, etc., on existing balconies, stairs and decks with like-for-like materials as long as it does not affect the structural components of the exterior cantilevered balconies, decks, stairs, or fire escapes;

12. Interior painting, floor sanding and refinishing, floor tile or carpeting, replacement of flooring with like material, application of wallpaper and other wall covering material, moveable cases, counters and partitions, and cabinet installation, counter tops, and similar finish work;

13. Plaster patching or gypsum board replacement not exceeding 25% of the total wall or ceiling area of a room or space provided the fire rating and moisture resistance is maintained and no modifications are made;

14. Wall paneling of any type when applied directly to existing room wall surfaces;

15. Installing or replacing ceiling tile of any type, other than foam plastic, when applied directly to existing ceiling surfaces, except when within assembly rooms with more than 300 occupants, institutional rooms or spaces, and corridors or exit stairways of any use. Replacing damaged lay-in ceiling panels with like materials up to 25% of a room or space and a maximum of 500 square feet;

16. Nonfixed or moveable fixtures, cases, racks, counters and partitions not over 5 feet, nine inches in height;

17. Foundation and floor slab repair such as patching/filling of cracks of up to ¼ inch in walls and ⅜ inch in slabs, waterproofing, etc., provided the building is otherwise structurally sound and plumb.

Additionally, for 1- and 2-family dwellings and multiple-family properties with no more than four units, permits shall not be required for the following:

18. Swings and other backyard playground equipment including basketball goals and standards;

19. New aluminum, steel, fiber cement, hardboard, or vinyl exterior siding with no change to existing openings. Replacement of 25% or less of the wall sheathing;

20. Application of pre-finished aluminum, steel, vinyl, or like materials on soffits, fascia boards, rake boards, or overhangs;

21. Replacement or repair of exterior or interior doors or frames, provided the fire rating, when applicable, is maintained, and no modification is made to the opening;

22. Replacement or repair of existing windows and frames, whenever no modification is made to the opening; installation of storm windows and doors, whenever no modification is made to the opening; glazing and glass replacement;

23. Awnings which do not project over property lines, and not over 40 square feet in projected area;

24. Exterior ramps, stairs, or steps which are on grade and not more than twelve inches above adjacent grade, not attached to the structure, and within property lines;

25. Sidewalks and driveways within property lines; paved areas on the same lot as the primary structure, without roofs, covers, or enclosures; concrete patio slabs or wooden patios/decks which rest directly on the ground or a rock base, provided that they are not covered by a roof or canopy, not supported by any type of permanent foundation, and a maximum of twelve inches above adjacent grade;

26. Small detached accessory buildings, such as utility/storage/tool sheds, cabanas, play houses, etc., 120 square feet in area or less and less than twelve feet in height, provided the utility shed is placed on and anchored to a minimum four-inch-thick concrete slab and maintains the setbacks required by the Zoning Ordinance. This does not include accessory buildings having unique uses such as barbeque or smoke houses, storage of fuel or other hazardous material, structures containing fuel fired equipment, and other uses that present an increased fire hazard or nuisance to adjoining property. A permit is required for all buildings housing these types of uses exceeding 50 square feet in area;

27. Residential accessory structures such as arbors, garden trellises, or other minor structures, provided such structures maintain the setbacks required by the Zoning Ordinance;

28. Non-dish radio or television antennae twelve feet or less in height, mounted on the ground, not in the front yard area, attached to, or on the roof of a building. Dish antennas two feet in diameter or less installed on grade or on the roof, provided such antennae maintain the setbacks required by the Zoning Ordinance;

29. Above-ground swimming pools, or hot tubs or spas placed on a slab. Also, in-ground swimming pools with less than 24 inches water depth with a surface area of less than 250 square feet. All pools, hot tubs, and spas shall maintain the setbacks required by the Zoning Ordinance;

30. Installation of battery-operated smoke detectors.

Exceptions:

1. Work involving repair of flood, earthquake, or other natural disaster damage.

2. A floodplain development permit is still required to be obtained if the site is located in the floodplain areas defined by FEMA.

3. Ordinary repairs or minor work to buildings and structures which fall under the purview of the Cultural Resource Office requiring "Cultural Resource Office Only" permits.

105.2.1 Emergency Repairs. Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day to the building official.

105.2.2 Repairs. Application or notice to the building official is not required for ordinary repairs to structures, replacement of lamps, or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition, or portion thereof; the removal or cutting of any structural beam or load bearing support; or the removal or change of any required means of egress or rearrange-

ment of parts of a structure affecting the egress requirements. Ordinary repairs also shall not include addition to or alteration, replacement, or relocation of any water supply, sewer, drainage, drain leader, gas, soil, waste, vent, or similar piping; electric wiring; or mechanical or other work affecting public health or general safety.

105.2.3 Public Service Agencies. A permit shall not be required for the installation, alteration, or repair of generation, transmission, distribution, metering, or other related equipment that is under the ownership and control of public service agencies by established right.

105.2.4 Damaged Building Repair. Buildings that are determined by the building official to have sustained light building damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction drawings showing the scope of work and a report prepared, sealed, signed, and dated by a Missouri licensed design professional stating that the building damage is light with no structural damage. Construction drawings may be prepared by a person who is not a Missouri licensed design professional.

Buildings that are determined by the building official to have sustained moderate or serious building damage or structural damage due to fire, earthquake, wind, flood, or other natural disasters shall require a building permit for repairs. The building permit application will include construction documents prepared, sealed, signed, and dated by a Missouri licensed design professional.

105.2.4.1 Condemned for occupancy or condemned for demolition building repair. Repairs to buildings that are determined by the building official to be condemned for occupancy or condemned for demolition shall require a building permit with construction documents prepared, sealed, and signed by a Missouri licensed design professional.

105.2.5 Maintenance. All buildings, structures, and premises and all parts thereof, both existing and new, shall be maintained in a safe and sanitary condition. All service equipment, means of egress, devices, and safeguards required by this code or a previous code or ordinance at the time a building or structure was erected, altered, or repaired shall be maintained in good working order.

105.2.6 Owner Responsibility. The owner(s) or the owner's agent shall be responsible for the safe and sanitary maintenance of the building, structure or premises and its means of egress facilities at all times.

105.3 By whom application is made. Application for a permit shall be made by the owner or lessee of the building or structure, or agent of either, or by the Missouri licensed design professional employed in connection with the proposed work. The full names, addresses, and telephone numbers of the owner, lessee, and applicant shall be stated in the application. Every application shall have a local contact person listed. Demolition and occupancy permit applications, when applied for by anyone other than the owner of record, shall be accompanied by a notarized letter of authorization or other documentation from the owner of record granting permission to apply.

105.3.1 Application for Permit. To obtain a permit, the applicant shall first file an application on a form furnished by the Division of Building and Inspection for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.

2. Describe the land on which the proposed work is to be done by legal description, street address, or similar description that will readily identify and definitely locate the proposed building or work.

3. Indicate the use and occupancy for which the proposed work is intended.

4. Be accompanied by construction documents and other information as required in Section 107.

5. State the estimated cost of construction of the proposed work.

6. Be signed by the applicant, or the applicant's authorized agent.

7. Give such other data and information as required by the building official.

105.3.2 Action on Application. The building official shall examine or cause to be examined applications for permits and amendments thereto. If the application or the construction documents do not conform to the requirements of all pertinent laws, the building official shall reject such application in writing, stating the reasons therefor. If the building official is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the

building official shall issue a permit. The building official shall rely upon other City agencies to review for compliance with their ordinance requirements.

105.3.2.1 Determination of Substantially Improved or Substantially Damaged Existing Buildings in Flood Hazard Areas. For applications for reconstruction, rehabilitation, addition, alteration, repair, or other improvement of existing buildings or structures located in a flood hazard area, the building official shall examine the construction documents and shall make a determination of the value of the proposed work. For buildings that have sustained damage of any origin, the value of the proposed work shall include the cost to repair the building or structure to its pre-damaged condition. If the building official finds that the value of the proposed work is 50% or more of the market value of the building or structure before the damage has occurred or the improvement is started, the proposed work shall be considered a substantial improvement or restoration of substantial damage and the building official shall require existing portions of the entire building or structure to meet the requirements of this code.

Where the building or structure has sustained substantial damage, repairs necessary to restore the building or structure to its pre-damaged condition shall be considered substantial improvements regardless of the actual repair work performed. The term shall not include either of the following:

1. Improvements to a building or structure that are required to correct existing health, sanitary, or safety code violations identified by the building official and that are the minimum necessary to ensure safe living conditions.

2. Any alteration of an historic building or structure provided that the alteration will not preclude the continued designation as an historic building or structure.

2.1 Listed or preliminarily determined to be eligible for listing in the National Register of Historic Places; or

2.2 Determined by the Secretary of the U.S. Department of Interiors as contributing to the historical significance of a registered historic district or a district preliminarily determined to qualify as an historic district; or

2.3 Designated as historic under a state or local historic preservation program that is approved by the Department of the Interior.

105.3.3 Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned six months after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except that the building official is authorized to grant one or more extensions of time for additional periods not exceeding 90 days each if the building official deems that there is reasonable cause and if a written request is received from the applicant for the extension prior to the expiration date.

105.3.4 Time Limitation on Approval. When an application for a permit has been approved by the building official and a permit has not been issued, the application shall be deemed to have been abandoned three months after the approval date. A notice of abandonment shall be sent to the applicant of record at least two weeks prior to the abandonment of the application.

Applicants who have a record of abandoned permit applications shall be required on all future permits to pay the application fee and the full permit fee upon application until such time as the abandoned permits have been reapplied for and approved and all applicable fees have been paid.

105.3.5 Action on Application for Permit to Use Explosives. When it is deemed proper, safe and advisable, the building official shall, upon receipt of application, issue permits for the use of explosives for blasting in connection with demolition, excavation, construction or other building operations. Without such permit, the use of explosives for the above-mentioned purposes is hereby prohibited. Additional permits shall be required under the Fire Code.

105.3.6 Information on the Permit. The building official shall issue all permits required by this code on an approved form furnished for that purpose. The permit shall contain a general description of the operation or occupancy and its location and any other information required by the building official. Issued permits shall bear the signature of the building official or other approved legal authorization.

105.4 Validity of Permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this code or of any other ordinance of the City of Saint Louis. Permits presuming to give authority to violate or cancel the provisions of this code or other ordinances shall not be valid. The issuance of a permit based on

construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is also authorized to prevent occupancy or use of a structure where in violation of this code or any other ordinance of the City of Saint Louis.

105.5 Expiration. All permits shall be issued in the name of the property owner of record for a period of six months unless noted otherwise. Permits shall be permitted to be extended for additional six-month periods if work is progressing and a written request from the owner for the extension is received by the building official prior to the expiration of each permit. Any permit issued shall become invalid if the authorized work is not commenced within six months after issuance of the permit, or if the authorized work is suspended or abandoned for a period of six months after the time of commencing the work; except that the building official shall be permitted to grant one or more extensions of time for additional periods not exceeding six months each if the building official deems that there is reasonable cause, and if a written request is received from the owner for the extension prior to the expiration date. No permit shall be extended if, after six months from issuance of said permit, no work has begun and the Board of Aldermen has passed an ordinance that would make all or part of the work thereon illegal or unlawful.

Permits shall also be abandoned upon written request from the property owner of record, or if circumstances require, the Missouri licensed design professional.

Exception: Permits for demolition of buildings or structures or repair of buildings or structures condemned in accordance with either Section 119 or Section 120 and other work specifically identified by the building official, when in the best interests of the public, shall become invalid after 30 days unless otherwise approved. The building official shall be permitted to grant one or more extensions of time for additional periods not exceeding 30 days each after receiving a written request from the owner explaining the reasons for failing to commence or for suspending work.

105.6 Suspension or Revocation. The building official is authorized to suspend or revoke a permit issued under the provisions of this code whenever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this code.

105.6.1 Revocation of Permits. The building official shall be permitted to revoke a permit or approval issued under the provisions of this code in case of any false statement or misrepresentation of fact in the application or construction documents on which the permit or approval was based. The building official shall be permitted to revoke or suspend a permit upon discovery of substantial noncompliance with this code or any applicable City ordinance. Permits shall be revoked for non-payment of fees.

105.6.2 Revocation of Permits for Repeat Offenders. The building official shall revoke any permit or certificate associated with a building, structure or premises when an owner(s) is convicted by a court of competent jurisdiction twice within a twelve-month period of being in violation of the same code provision on the same building, structure or premises.

105.7 Placement of Permit. A true copy of the building permit shall be kept on the site of operations, open to inspection during the entire time of prosecution of the work and until the completion of the same.

105.8 Responsibility. It shall be the duty of every person who performs work for the installation or repair of building, structure, electrical, gas, mechanical, or plumbing systems, for which this code is applicable, to comply with this code.

105.9 Notice of Start. At least 24 hours' notice of start of work under a building permit shall be given to the building official.

105.10 Compliance with Permit. All work shall conform to the approved application and the approved construction documents for which the permit has been issued and any approved amendments to the approved application or the approved construction documents. Any addition to or alteration of approved construction documents shall be approved in advance by the building official, as evidenced by the issuance of a new or amended permit.

SECTION 106 FLOOR AND ROOF DESIGN LOADS

106.1 Live Loads Posted. Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed 50 pounds per square foot, such design live loads shall be

conspicuously posted by the owner in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

106.2 Issuance of Certificate of Occupancy. A certificate of occupancy required by Section 111 shall not be issued until the floor load signs required by Section 106.1 have been installed.

106.3 Restrictions on Loading. It shall be unlawful to place or cause or permit to be placed on any floor or roof of a building, structure, or portion thereof a load greater than is permitted by this code.

SECTION 107 CONSTRUCTION DOCUMENTS

107.1 Submittal Documents. The application for the permit shall be accompanied by at least five complete sets of construction drawings, one set of project specifications, one set of structural calculations, one set of the geotechnical (soils) report, and one set of site or building photographs with sufficient clarity and detailed dimensions to show the nature and character of the work to be performed. The minimum size of any sheet shall be 8½" x 11" and the maximum size of any sheet shall be 3 6" x 48". When quality of materials is essential for conformity to this code, specific information shall be given to establish such quality. This code shall not be cited nor the term "legal" or its equivalent be used as a substitute for specific information. Construction documents containing the words "not for construction," "preliminary," "review set," or their equivalent shall not be accepted for application. Construction documents marked with contractors' "take-off" notations shall not be accepted for application.

If the construction documents for single-family or multiple-family dwelling units are prepared by a Missouri licensed architect, that architect must seal, sign and date the construction documents as required by RSMo Ch. 327.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a licensed design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

107.1.1 Seals. All construction documents submitted with an application for a building permit shall be prepared by a Missouri licensed design professional as required by RSMo Ch. 327. All construction documents shall bear an original embossed or wet ink seal, original ink signature, and the date the documents were sealed by the Missouri licensed design professional for each discipline on the cover sheet of each set of construction documents or on the first sheet of each discipline's drawings within each set of construction documents.

In addition, all other sheets of the construction documents other than project specifications or calculations shall bear the original embossed, wet ink, electronic, or mechanically reproduced seal, signature, and date of the Missouri licensed design professional. Any addenda or modifications submitted for changes to the construction documents shall also bear the original embossed or wet ink seal, original ink signature, and date the documents were sealed.

All project specifications, calculations, reports, or other documents not considered to be construction drawings shall bear an original wet ink or embossed seal, original ink signature, and the date the documents were signed by the Missouri licensed design professional for each discipline on the title or index sheet.

A Missouri licensed professional engineer cannot render architectural services or seal, sign and date construction documents for any residential project. This could be interpreted as the unlawful practice of architecture by a Missouri licensed professional engineer. A Missouri licensed professional engineer may prepare seal, sign and date architectural work which is incidental (insignificant, minor, etc.) to the engineering work (and vice versa). This determination shall be made on a case by case basis depending upon the full scope of the project.

Exceptions:

1. Construction documents for one- or two-family dwellings not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

2. Construction documents for non-structural alterations to multiple-family dwellings with not more than four dwelling units not prepared by a Missouri licensed design professional, including name, address, and telephone number of the author, and indicating that they were not prepared by a licensed architect.

3. Construction documents for owner-occupied one- or two-family dwellings prepared by the owner.

107.2 Construction Documents. Construction documents shall be in accordance with Sections 107.2.1 through 107.2.10.

107.2.1 Information on Construction Documents. Construction documents shall be drawn and dimensioned upon suitable material. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed and show in detail that it will conform to the provisions of this code and relevant laws, ordinances, rules, and regulations as determined by the building official.

107.2.2 Fire protection Construction Drawings. Construction drawings for the fire protection system(s) shall be submitted to show conformance with this code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9 of the Building Code.

107.2.3 Means of Egress. The construction documents shall show in sufficient detail the location, construction, size, and character of all portions of the means of egress in compliance with the provisions of this code.

107.2.4 Exterior Wall Envelope. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this code. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves, or parapets, means of drainage, water-resistive membrane, and details around openings.

The construction drawings shall include manufacturing installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system which was tested, where applicable, as well as the test procedure used.

107.2.5 Site Plan. The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades, and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirements for a site plan when the application for permit is for alteration or repair or when otherwise warranted.

107.2.5.1 Change in Site Plan. A lot shall not be changed, increased, or diminished in area from that shown on the official site plan until a revised site plan is resubmitted showing such changes accompanied by proof that the documents have been filed in the Recorder of Deeds Office and approved under the Zoning Ordinance; except that such revised site plan will not be required if the change is caused by reason of an official street or alley opening, street widening, or other public improvement.

107.2.6 Structural Information. For other than one- and two-family dwellings or existing multiple-family dwellings with no more than four units, the construction documents shall provide the information specified in Section 1603 of the Building Code.

107.2.7 Manufacturer's Installation Instructions. Manufacturer's installation instructions, as required by this code, shall be available on the job site at the time of inspection.

107.2.8 Information of Braced Wall Design. For buildings and structures utilizing braced wall design, and where required by the building official, braced wall lines shall be identified on the construction documents. Pertinent information, including, but not limited to, bracing methods, location and length of braced wall panels, and foundation requirements of braced wall panels at top and bottom shall be provided.

107.2.9 Information for Construction in Flood Hazard Areas. For buildings and structures located in whole or in part in flood hazard areas, construction documents shall include:

1. Delineation of flood hazard areas, floodway boundaries, and flood zones, and the design flood elevation, as appropriate;

2. The elevation of the proposed lowest floor, including basement; in areas of shallow flooding (AO zones), the height of the proposed lowest floor, including basement, above the highest adjacent grade;

3. The elevation of the bottom of the lowest horizontal structural member in coastal high hazard areas (V zone); and

4. If design flood elevations are not included on the community's Flood Insurance Rate Map (FIRM), the building official and the applicant shall obtain and reasonably utilize any design flood elevation and floodway data available from other sources.

107.2.10 Information for electric vehicle charging stations. Construction documents shall include electric vehicle charging stations with system installation requirements set forth in Section 908.1 and the Electrical Code.

107.3 Examination of Documents. The building official shall examine or cause to be examined the construction documents for code compliance.

107.3.1 Approval of Construction Documents. The building official shall stamp three sets of construction documents "APPROVED," and at least one set of such approved construction documents shall be retained by the building official and one set shall be kept at the building site, open to the inspection of the building official or an authorized representative at all reasonable times. If additional "APPROVED" sets are required by the applicant, a charge shall be made as listed in Table 109.3.1.

107.3.2 Previous Approvals. This code shall not require changes in the construction documents, construction or designated occupancy of a building or structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been actively prosecuted in good faith within 180 days after the effective date of this chapter and has not been abandoned. When the codes adopted by the City of Saint Louis change from one edition to another, the work shall be permitted to be completed under the codes in effect when the permit for said work was originally issued.

107.3.2.1 Code Transition. Unless requirements imposed by federal law or state statute have changed, permits applied for within six months of the effective date of this chapter shall be permitted to be reviewed and approved under the former code if there is written evidence of a preliminary plan exam review of the project under the former code. The cover sheet of the construction documents shall show under which code the project was designed.

107.3.3 Phased Approval. The building official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided that adequate information and detailed statements have been filed complying with pertinent requirements of this code. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure will be granted.

107.3.4 Design Professional in Responsible Charge. When it is determined that documents be prepared by a Missouri licensed design professional, the building official shall be authorized to require the owner or the owner's authorized agent to engage and designate on the building permit application a Missouri licensed design professional who shall act as the Missouri licensed design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute Missouri licensed design professional in responsible charge who shall perform the duties required of the original Missouri licensed design professional in responsible charge. The building official shall be notified in writing by the owner or the owner's authorized agent if the Missouri licensed design professional in responsible charge is changed or is unable to continue to perform the duties.

The Missouri licensed design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

Where structural observation is required by Section 1710 of the Building Code, the inspection program shall name the individual or firms who are to perform structural observation and describe the stages of construction at which structural observation is to occur. See also duties specified in Section 1704 of the Building Code.

107.3.4.1 Deferred Submittals. For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the building official within a specified period.

Deferral of any submittal items shall have the prior approval of the building official. The Missouri licensed design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

The Missouri licensed design professional in responsible charge shall review the deferred submittal items and forward them to the building official with a

notation indicating that they have been reviewed and found to be in general conformance with the design of the building. The deferred submittal items shall not be installed until their design and submittal documents have been approved by the building official.

107.3.4.2 Engineering Details. The building official shall require to be filed adequate details of structural, plumbing, mechanical, and electrical work including computations, loadings, and structural analysis and other essential technical data. All construction documents shall bear an original embossed or wet ink seal, original ink signature and the date the documents were sealed by the Missouri licensed design professional responsible for the design as required by state statute. Such calculations shall be permitted to be accepted by the building official as complying with the conditions of this code without the need to verify the calculations or their engineering analysis.

107.4 Amended Construction Documents. Work shall be installed in accordance with the approved construction documents. Any changes to the approved scope of work shall be submitted for approval as an addendum to the approved construction documents.

SECTION 108 TEMPORARY STRUCTURES AND USES

108.1 General. The building official is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service, but shall not be permitted for more than 180 days. The building official is authorized to grant extensions for demonstrated cause.

108.2 Conformance. Temporary construction and uses shall conform to the structural strength, fire safety, means of egress, light, ventilation, and sanitary requirements of this code as necessary to ensure the public health, safety, and general welfare.

108.3 Temporary Power. The building official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in the Electrical Code.

108.4 Termination of Approval. The building official is hereby authorized to terminate such permit for a temporary structure or use and to order the temporary structure or use to be discontinued.

SECTION 109 FEES

109.1 General. No permit, certificate, or inspection report required by the provisions of this code shall be released or issued until the fees listed in this section have been paid to the City of Saint Louis; nor shall an amendment to a permit be released until the additional fees have been paid. In collecting said fees, the building official is authorized to accept personal checks as payment; however, non-payment by said checking account shall be considered as a violation of this code and is cause for suspension or revocation of permits, certificates, or reports issued or released for such personal check payment. If a permit is suspended or revoked for non-payment of a fee or for insufficient funds, an additional $25.00 shall be collected to cover administrative costs.

109.1.1 Fees Other Than Herein Prescribed. The payment of fees listed in this section shall not relieve the applicant or holder of any permit or any certificate of occupancy from the payment of other fees which shall be prescribed by law or ordinance for water taps, sewer connections, plumbing permits, mechanical permits, electrical permits, sprinkler permits, fire alarm permits, or fees for inspections or other privileges or requirements, both within and without the jurisdiction of the Division of Building and Inspection.

109.2 Schedule of Permit Fees. Fees for permits for construction shall be as established as follows:

109.2.1 Application Fee. An application fee is an administrative charge made for processing permit applications, preparing a Certificate of Floodplain Status, or conducting a Building Line Survey and shall be as listed in Table 109.3.1.

109.2.2 New Construction and Additions. The building permit fee for new construction and additions will be based on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for new construction and additions. For the purpose of determining a fee, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe, and fire alarm systems; and signs.

109.2.3 Miscellaneous Structures and Site Work. The fee for a permit for, including, but not limited to,

retaining walls, fences and site-work (including parking lots) shall be based on the estimated total cost of the construction at the rate listed in Table 109.3.1.

109.2.4 Alterations and Repairs. The fee for a permit for alterations or repairs to a building or structure shall be based on the estimated total cost of said alterations or repairs and shall be charged at the rate listed in Table 109.3.1.

109.2.5 Tanks, Devices, Etc. The fee for a permit for the installation of a tank, device, equipment, or other structure or facility shall be as listed in Table 109.3.1.

109.2.6 Tents, Amusement Booths. The fee for a permit for the construction, installation, or erection of a tent or amusement booth shall be as listed in Table 109.3.1. This shall include all those for private parties, picnics, carnivals, circuses, or traveling exhibitions.

109.2.7 Moving of Buildings. The fee for a permit to move abuilding or structure from one lot to another, or to a new location on the same lot, shall be as listed in Table 109.3.1. In the event that a building or structure is to be moved from a point within the City of Saint Louis to a point outside the City, the fee for the moving permit shall be based on the estimated total cost of restoration of the original site to a safe and satisfactory condition plus that portion of the moving cost which covers the journey to the City limits. In the event that a building or structure is to be moved from the outside of the City of Saint Louis to a point inside the City limits, the fee for the moving permit shall be based on the estimated total cost of the portion of the journey from the City limits to the site of re-erection.

109.2.7.1 New Foundations. Before any building or structure is moved to a new foundation, a separate building permit shall be obtained for the construction of said new foundation; the fee for the permit for said foundation shall be as listed in Table 109.3.1. In addition, all additional electrical, mechanical, and plumbing permits shall be obtained.

109.2.8 Explosives. The fee for a permit for the use of explosives for blasting in connection with demolition, excavation, construction, or other building operations shall be as listed in Table 109.3.1. When a blasting operation consists of a series of blasts at intervals of distance, such as blasting a trench for the installation of utilities, and the extent of the blasting operations exceeds 250 feet in length, the fee for a permit shall be charged for the first 250 feet of the operation with an additional fee for each additional 250 feet or any portion thereof. The fee for a permit for the use of explosives shall cover the issuance of the permit and shall also cover pre-blasting survey inspection and post-blasting survey inspection of all property within 250 feet of the blasting operation. In addition, a separate permit shall be required under the Fire Code for the transportation, storage, or use of explosives.

109.2.9 Addendum to Permit. Fees for addendums to issued permits shall be as follows:

1. Where an addendum includes work that will increase the construction cost of the complete project, the fee listed in Table 109.3.1 shall be calculated on the additional cost incurred by the change in scope, and shall include application, special demolition fund, and lead remediation fees.

2. Where an addendum does not include work that will increase the construction cost of the complete project, or includes work or removal of work that decreases the cost of the complete project, a minimum fee as listed in Table 109.3.1 and an application fee shall apply.

109.2.10 Special Demolition Fund. There shall be an additional fee charged on all building permits based on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for the special demolition fund.

109.2.11 Lead Remediation Fund. There shall be an additional fee charged on all building permits based on the total estimated cost of construction, and shall be charged at the rate listed in Table 109.3.1 for the special lead remediation fund.

109.2.12 Vacant Building Registration Fee. A semi-annual registration fee of $200.00 shall be charged to the owner of any parcel of residential property improved by a residential structure, or commercial property improved by a structure containing multiple dwelling units, which is vacant and has been vacant for at least six months, and which is violation of this code.

109.2.13 Fee for Duplicate Copy. Any person requesting a copy of a building permit, occupancy permit, or certificate of inspection issued under this code, or the holder of any permit for similar purpose issued by the building official under any previous code or ordinance, can obtain a duplicate or re-issued copy of said permit for a fee of one dollar per copy. This fee is listed in Table 109.3.1.

109.2.14 Fee for Occupancy Permit. Fees for the issuance of an occupancy permit shall be as listed in Table 109.3.1. There shall be no charge for the issuance

of the original occupancy permit upon completion of construction in accordance with the building permit for new buildings or buildings hereafter altered with construction costs exceeding $30,000.00.

109.2.14.1 Fee for temporary or partial occupancy permit. The fee for a partial occupancy permit shall be as listed in Table 109.3.1.

109.2.14.2 Fee for changing the name on an occupancy permit. Any person requesting a re-issuance of an occupancy permit issued under this code or under any previous code or ordinance due to a change of name can obtain a re-issued copy of said permit for a fee of five dollars per copy. This fee is listed in Table 109.3.1.

109.2.15 Fee for Approving Additional Sets of Construction Documents. Any person requesting additional sets of approved construction documents issued under this code or under any previous code or ordinance shall be charged a fee of one dollar per page. This fee is listed in Table 109.3.1.

109.3 Fee Tables. The building official shall cause to be collected all fees as listed in Table 109.3.1 and elsewhere in this code.

Table 109.3.1

BUILDING PERMIT FEES FOR STRUCTURES; BLASTING AND INSPECTIONS FEES

Item	Fee	Minimum Fee	Section	Remarks and Requirements
APPLICATION FEE; or Building Line Survey	$25.00		109.2.1	An administrative charge made for processing applications.
Certificate of Floodplain Status	$10.00		109.2.1	
PERMIT FOR NEW CONSTRUCTION AND ADDITIONS	$6.00/$1000 of estimated cost or fraction thereof	$15.00	109.2.2	
MISCELLANEOUS STRUCTURES PERMIT - Structures such as towers, retaining walls, floating structures, parking lots, fences, awnings, signs, etc.	$6.00/$1000 of estimated cost or fraction thereof	$15.00	109.2.3	For all structures, devices, appurtenances, and equipment requiring permits & not otherwise provided for by this code.
PERMIT FOR ALTERATIONS & REPAIRS TO AN EXISTING BUILDING	$6.00/$1000 of estimated cost or fraction thereof	$15.00	109.2.4	Permits for flammable and combustible liquids are required under the Fire Code.
TANK PERMIT For any purpose except flammable and combustible liquids	$6.00/$1000 of estimated cost or fraction thereof	$15.00	109.2.5	
TENT PERMIT	$35.00		109.2.6	Section 3103 of the Fire Code.
MOVING OF BUILDING PERMIT Within City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00	109.2.7	Estimated cost of moving building to new location plus cost of restoring previous site to a safe condition.
To outside City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building to City limits plus cost of restoring previous site to a safe condition.
From outside City Limits to within City Limits	$1.00/$100 of estimated cost or fraction thereof	$15.00		Estimated cost of moving building from City Limits to a new site.
Foundation for building	$6.00/$1000 of estimated cost or fraction thereof	$15.00	109.2.7.1	
EXPLOSIVES PERMIT Blasting permit for trenching	$6.00/250 lineal feet or fraction thereof	$100.00	109.2.8	For construction, excavation, or other building operation.
Blasting for demolition	$100.00	$100.00	109.2.8	Includes pre- and post-blast survey per building/per blast.
ADDENDUM PERMIT Amendment which involves additional dollars in project cost.	$6.00/$1000 of estimated increased cost or fraction thereof	$25.00	109.2.9	
Amendment which involves decrease or no increase in project cost.	$25.00	$25.00		

Item	Fee	Minimum Fee	Section	Remarks and Requirements
SPECIAL DEMOLITION FUND	$2.00/$1,000 of estimated cost or fraction thereof		109.2.10	Special fund approved by the voters.
LEAD REMEDIATION FUND	$2.00/$1,000 of estimated cost or fraction thereof		109.2.11	Special fund approved by Ordinance 64699.
VACANT BUILDING REGISTRATION FEE	$200.00 Semi-annually		121.1	
DUPLICATE COPY OF BUILDING PERMIT, OCCUPANCY PERMIT OR CERTIFICATE OF INSPECTION	$1.00 per copy		109.2.13	
APPLICANT REQUEST FOR OCCUPANCY PERMIT Residential	$80.00		109.2.14 109.2.14.1	Special inspection fees for occupancy permits. This fee is also applicable to partial occupancy permits.
	$20.00/each additional unit in same structure			When units are inspected on the same site inspection.
Commercial 3,500 sq. ft. or less	$80.00			
Commercial over 3,500 sq. ft.	$160.00			
RE-ISSUANCE OF OCCUPANCY PERMIT DUE TO NAME CHANGE	$25.00 per copy		109.2.14.2	
APPROVAL OF ADDITIONAL SETS OF CONSTRUCTION DOCUMENTS	$1.00 per page		109.2.15	
DEMOLITION PERMITS - Structure volume less than 10,000 cu. ft.	$10.00	$10.00	123.1.5	Based on volume of structure exclusive of basement or cellars.
10,000 cu. ft. and over	$15.00/10,00 0 cu. ft. or fraction thereof	$25.00		Demolition permits shall be issued for a period not to exceed thirty days.
DEMOLITION INSPECTION FEE				
Less than 10,000 cu. ft.	$15.00	$15.00	123.1.5	Per site
10,000 cu. ft. or over	$25.00	$25.00		Per site
Blasting for demolition	$50.00	$50.00	109.2.8	Per site
Applicant request	$25.00			Related to other occupancy and use permits requested by the applicant.
Emergency and specialty inspection	$25.00			Charge for inspection requested to be made beyond normal working hours - not to exceed $25.00 per requested inspection.

109.3.1 Fee schedule. Table 109.3.1 contains fees for permits for new construction and additions; miscellaneous structures; alterations and repairs to existing buildings; tanks; moving of buildings; demolition of structures; blasting for demolition or construction purposes; picnics, carnivals, and circuses or traveling exhibitions; tents; amusement park devices; addendums to permit; the special demolition and lead remediation funds; special inspections; and occupancy.

109.3.2 Building permit valuations. The applicant for a building permit shall provide a total estimated cost of construction for the project at the time of application. For the purpose of determining fees, total construction costs shall include all costs for normal site preparation including grading, excavation, and backfill; structural work; interior and exterior finishes; and plumbing, mechanical, and electrical work. The following shall be permitted to be excluded from total construction costs: the cost to install sprinkler, standpipe and fire alarm systems; and signs.

If, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed construction estimates for the project to meet the approval of the building official. The building official shall be permitted to require the submittal of signed and notarized construction contracts when the total

estimated cost of construction is questioned. Final building permit valuation shall be set by the building official.

Final costs shall be determined by the building official, if necessary, by multiplying the total floor area of the project in square feet by an appropriate square foot cost rate, or by using the current ICC Building Valuation Data Report for New Construction, Additions, Alterations, Repairs, or Rehabilitation.

109.3.3 Sign Fee Schedule. Table 109.3.3 contains the basic building fees for signs governed by this code.

Table 109.3.3(a)

SIGN PERMIT FEES

Item	Fee	Minimum Fee	Section
GROUND SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
ROOF SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
WALL SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
PROJECTING SIGNS			
Up to 100 square feet	$100.00	$100.00	IBC H101.3.1
Over 100 square feet	$160.00		
SPECIAL OR TEMPORARY DISPLAY SIGNS REQUIRING PERMITS Fees for a special sign shall be the same as the one above which it most closely resembles.		$100.00	IBC H101.3.1
LETTERING OR GRAPHICS ON AWNINGS AND CANOPIES	$50.00	$50.00	
Note a. When a question arises as to what type of sign is being constructed or placed, it shall be designated as that type of sign it most closely resembles as determined by the building official. (See also Chapter 29 of the Building Code and the Zoning Ordinance.)			

109.4 Work Started Surcharge Fees Schedule. In case any work for which a permit is required by this code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.4. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 109.4

SCHEDULE FOR SURCHARGE BUILDING PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

109.5 Demolition Work Started Surcharge Fees Schedule. In case any work for which a demolition permit is required by the code is substantially started or proceeded with prior to obtaining said permit, the total normal fees applicable shall be increased by the amount as listed in Table 109.5. The payment of said surcharge fee shall not relieve any persons from fully complying with the requirements of this code for performance or execution of the work, nor from other penalties prescribed by law.

Table 109.5

SCHEDULE FOR SURCHARGE DEMOLITION PERMIT FEES

Permit fee	Surcharge fee
$0.00 TO $50.00	$30.00
$51.00 TO $200.00	$90.00
$201.00 TO $500.00	$240.00
$501.00 TO $2,000.00	$360.00
$2,001.00 TO $10,000.00	$480.00
OVER $10,000.00	$600.00

109.6 Related Fees. The payment of fees for the construction, alteration, removal or demolition for work done in connection with or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

109.7 Fees Non-Refundable. The fee for a permit based upon an estimated cost that is higher than later claimed by the applicant shall not be a basis for refund. When construction does not occur, or only partially occurs, fees collected are not refundable.

109.8 Fees Waived for Disaster Related Permits. In the event of a tornado, earthquake, flood, or any other disaster of such magnitude to activate the City Emergency Management Agency, the Building Commissioner is authorized to waive all permit fees normally collected by the Division of Building and Inspection for repairs, reconstruction, demolition, plumbing, mechanical, or electrical work or any other similar permits required by this Division to correct the damage caused by such disaster. These permit fees shall be permitted to be waived for a period not to exceed six months or as otherwise determined by the Building Commissioner.

SECTION 110 INSPECTIONS

110.1 General. Construction or work for which a permit is required shall be subject to inspection by the building official and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the City of Saint Louis. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the City of Saint Louis shall be liable for expenses entailed in the removal or replacement of any material required to allow inspection.

110.2 Preliminary Inspection. Before issuing a permit, the building official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

110.2.1 Notice to Begin Work. It shall be the responsibility of the holder of a permit to notify the building official when work is ready for the various inspections required by the terms of the permit or the approved rules. Such notice shall be given within a reasonable time before the inspection is desired, but in no event shall the notice be less than the working day before. Notice given on a Friday or on a day prior to a legal holiday shall not constitute notice for inspection on a Saturday, Sunday, or holiday unless arrangements have been made under approved rules for overtime inspection on such days. Before giving such notice the holder of the permit shall first test the work and satisfy themselves that it conforms to the approved construction documents and the requirements of this code.

110.3 Required Inspections. The building official, upon notification, shall make the inspections set forth in Sections 110.3.1 through 110.3.10. No work shall be done on any part of the building or structure beyond the point indicated in each successive inspection without first obtaining the approval of the building official or authorized representative. Approval shall be given only after an inspection has been requested and made of each successive step in the construction phase and all code requirements or corrections are completed as indicated by each of the inspections required. A final inspection and approval of all buildings shall be completed before occupancy as described in Section 111. Failure to obtain a final inspection before occupancy will constitute a violation of the Building Code subject to the penalties as set forth in Section 25.20.030. Reinforcing steel or structural framework of any part of a building or structure shall not be covered or concealed in any manner without first obtaining the approval of the building official. The building official, upon notification from a permit holder or agent, in accordance with the rules of procedure listed on the permit and posted in the office of the building official, shall make the following inspections and shall either approve that section or portion of the construction as completed or shall notify the permit holder or agent that they have failed to comply with the law.

110.3.1 Footing or Foundation Inspection. Footing and foundation inspections shall be made after excavation for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job. The owner is solely responsible for the correct location of the foundation on the site.

110.3.1.1 Soil Inspection. A soil inspection shall be made after excavation for the building or structure is complete and trenches for footings, column pads, spread footings, or other types of footings are ready for concrete. No concrete shall be poured prior to this inspection.

110.3.1.2 Pier Inspection. Where special foundations such as drilled and poured-in-place concrete piers, driven piles of all types, caissons, and other extraordinary types are required, the building official shall make at least one inspection or more if the size of the job warrants it.

110.3.2 Concrete Slab or Under-Floor Inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories, and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

110.3.3 Lowest Floor Elevation. In flood hazard areas, upon placement of the lowest floor, including basement, and prior to further vertical construction, the elevation certificate required in Section 1612.5 of the Building Code shall be submitted to the building official.

110.3.4 Frame Inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking, and bracing are in place and pipes, chimneys, and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes, and ducts are approved.

110.3.5 Lath, Gypsum Board, and Gypsum Panel Product Inspection. Lath, gypsum board, and gypsum panel product inspections shall be made after lathing, gypsum board, and gypsum panel products, interior and exterior, are in place, but before any plastering is applied or gypsum board or gypsum panel product joints and fasteners are taped and finished.

Exception: Gypsum board and gypsum panel products that are not part of a fire-resistance-rated assembly or a shear assembly.

110.3.5.1 Covering Work. It shall be a violation of this code to cover prior to inspection any work required to be inspected under the provisions of a permit, the approved rules, or this code, regardless of any penalties for such violation. The building official shall be permitted to require the holder of the permit to uncover any such work for inspection, and the cost of uncovering such work and of replacing the cover after the work has been satisfactorily inspected, shall be borne by the holder of the permit.

110.3.6 Fire- and Smoke-Resistant Penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers, and smoke partitions shall not be concealed from view until inspected and approved.

110.3.7 Energy Efficiency Inspections. Inspections shall be made to determine compliance with Chapter 13 of the Building Code or Chapter 11 of the Residential Code for One- and Two-family Dwellings, as applicable, and shall include, but not be limited to, inspections for: envelope insulation R and U value, fenestration U value, duct system R value, and HVAC and water heating equipment efficiency.

110.3.8 Other inspections. In addition to the inspections specified above, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this code and other laws that are enforced by the Division of Building and Inspection.

110.3.8.1 Plant Inspection. Where required by the provisions of this code or by the approved rules, materials or assemblies shall be inspected at the point of manufacture or fabrication.

110.3.8.2 Evaluation and Follow-Up Services. Prior to the approval of a closed prefabricated assembly and issuance of a building permit, the building official shall require the submittal of an evaluation report of each prefabricated assembly indicating the complete details of the assembly including a description of the assembly and its components, the basis upon which the assembly is being evaluated, test results and similar information, and other data as necessary for the building official to determine conformance with this code. Acceptable reports shall be permitted to come from the State of Missouri Public Service Commission or ICC Evaluation Services.

110.3.8.2.1 Evaluation Service. The building official shall designate the evaluation service of an approved agency as the evaluation agency, and review such agency's evaluation report for adequacy and conformance to this code.

110.3.8.2.2 Follow-Up Inspection. Except where all assemblies and subassemblies, service equipment, and accessories are readily accessible for complete inspection at the site without disassembly or dismantling, the building official shall conduct the frequency of in-plant inspections as necessary to reasonably ensure conformance to the approved evaluation report or shall designate an approved independent inspection agency to conduct such inspections. The inspection agency shall furnish the building official with the follow-up inspection manual and a written report of inspections upon request, and the product shall have an identifying label permanently affixed to the product indicating that factory inspections have been performed.

110.3.8.2.3 Test and Inspection Records. All required tests and inspection records shall be accessible to the building official or quality assurance agency at all times during the fabrication of the unit or subassem-

bly and the erection of the building; or such records as the building official designates shall be filed with the building official.

110.3.8.2.4 Inspection Reports. All inspection reports shall be in writing and shall be certified by the licensed authority or responsible officer of the service, or by the individual when expert inspection services are accepted. An identifying label or stamp permanently fixed to the product indicating that factory inspection has been made shall be accepted in lieu of the aforesaid inspection report in writing if the intent or meaning of such identifying label or stamp is properly substantiated.

110.3.9 Special Inspections. For special inspections, see Section 1704 of the Building Code.

110.3.10 Final Inspection. The final inspection shall be made after all work required by the building permit is completed.

Upon completion of the building or structure, and before issuance of the occupancy permit as required in Section 111, a final inspection shall be made. All violations of the approved construction documents and permit shall be noted and the holder of the permit shall be notified of the discrepancies. The building official shall be permitted to issue a partial occupancy permit for a specific period of time. Failure to comply with the conditions shall cause revocation of the permit.

110.3.11 Blast Survey Inspections. When a permit is issued for the use of explosives, the building official shall cause to be conducted two survey inspections of all buildings within 250 feet of the blasting, and a third inspection to be made after the blasting. These inspections shall indicate any settlement, cracks or other deterioration; additional or supplemental detailed survey work shall be permitted to be required by the building official. Such inspections or survey work, as required by the building official, must be conducted by a private individual or individuals technically competent to do such work and acceptable to the building official. Such private surveys shall be conducted at the expense of the permit applicant. The additional or supplemental survey work shall be permitted to be accepted by the building official in lieu of the pre-blast or post-blast survey if the survey(s) has included all areas within 250 feet of the blasting site and contains the details required herein.

110.4 Approved Inspection Agencies. The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.

110.5 Inspection Requests. It shall be the duty of the holder of the building permit or their duly authorized agent to notify the building official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspection of such work for any inspections that are required by this code.

110.5.1 Action on Notice. Upon receipt of notice that work is ready for inspection, the building official shall inspect, or cause to be inspected, the work as soon as reasonably practicable. However, failure of the building official to make a prompt inspection shall not be deemed justification for covering work without inspection when such work is required under the terms of the permit to be inspected before being covered.

110.6 Approval Required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the building official.

110.7 Periodic Inspections. The building official shall, if deemed necessary, make or cause to be made such periodic inspections of buildings, structures, devices, appurtenances, and uses as are required by and in the intervals prescribed by Table 110.7. In order to provide a uniform workload throughout the year, the building official shall be permitted to alter the intervals between periodic inspections as required to meet staffing levels.

Table 110.7

PERIODIC INSPECTION OF STRUCTURES, DEVICES, AND USES

Item	Period between inspections
Cornices, entablatures, belt courses, trim, and similar decorative features; maintenance repair and safe condition thereof (for such items projecting from the face of buildings). See note a.	3 years
Exterior Cantilevered Balconies, Stairways, and Fire Escapes. See note b.	3 years
Other annual permits, certificates, and clearances through Board of Public Service action such as day care centers, nursing homes, homes for the aged, hospitals. See note c.	1 year
Permanent amusement devices	1 year
Auto lifts	1 year
Note a. Applies to all buildings over five stories or 60 feet in height. Owners to submit report bearing the seal, signature, and date of a Missouri licensed Professional Engineer or Architect to the building official every three years describing the condition and safety of cornices, entablatures, belt courses, etc. The building official shall waive inspection if feature does not encroach over a City of Saint Louis sidewalk, street, or alley.	
Note b. Owners shall submit a report bearing the seal, signature, and date of a Missouri licensed Professional Engineer or Architect to the building official every three years describing the condition and safety of exterior cantilevered balconies, stairways, and fire escapes.	
Note c. Applies to all other inspections of buildings or uses not otherwise provided for in this code or any City ordinance which are made annually per the Board of Public Service Permit, and which are assigned by BPS to the Building Division for permit verification, certification, re-certification, or clearances.	

110.7.1 Professional Inspection. The building official shall require owners to supply inspection reports by Missouri licensed design professionals for any building, structure, appurtenance, or device when, in the building official's opinion, it is necessary to insure proper public safety, health, and welfare.

110.8 Authority to Enter. The building official shall have the authority to enter at any reasonable hour any building, structure or premises in the City of Saint Louis for which a permit has been issued but has not received a certificate of occupancy in accordance with Section R110 to enforce the provisions of this code or any other code or ordinance of the City of Saint Louis. No person shall accompany a building official onto a premises in the performance of their duty unless otherwise invited onto said premises by the owner or the owner's representative.

For all other structures or premises, when the building official has reasonable cause to believe that a code violation exists, the building official is authorized to enter the building, structure, or premises at reasonable times to inspect subject to constitutional restrictions on unreasonable searches and seizures. If entry is refused or not obtained, the building official is authorized to pursue recourse as provided by law.

110.9 Jurisdictional Cooperation. The assistance and cooperation of the Police, Fire, Streets, Parks, and Health Departments and all other City officials shall be available as required in the performance of the duties of the building official.

110.10 Parking. Division of Building and Inspection employees, when on official duty, shall be allowed to park without payment of fees at any parking meter or contrary to posted no parking zones. In no event will parking be allowed in front of fire plugs, mail boxes, bus stops, or wheelchair ramps or within disabled parking spaces unless vehicle displays a permanent Missouri placard or license plate for the disabled.

110.10.1 Placards. Each authorized individual shall display one placard approved by the building official in either the front or rear window of private or City vehicles to indicate that the individual is on official City business and is exempt from parking fees, citations, and parking tickets in accordance with Section 110.10 during normal working hours. The Building Commissioner shall not issue such placards to any person not on the Division of Building and Inspection payroll. The Building Commissioner shall have the authority to request cancellation of parking tickets issued contrary to this chapter.

SECTION 111 CERTIFICATE OF OCCUPANCY

111.1 Use and Occupancy. No building, structure, or premises shall be used or occupied and no change in the existing occupancy classification of a building, structure, premises, or portion thereof shall be made until the building official has issued an occupancy permit as provided herein. Issuance of an occupancy permit shall not be construed as an approval of a violation of the

provisions of this code or of other ordinances of the jurisdiction. Failure to have an occupancy permit approved and issued by the building official is a violation and both the occupant and owner shall be subject to a penalty as set forth in Section 25.20.030. Each day that a violation continues shall constitute a separate offense.

111.1.1 Posting Notice. It shall be the duty of the building official to post a notice on any building, structure or portion thereof when it is found that an occupancy permit is required before any occupancy shall be permitted to occur. This notice shall remain in plain sight and removal of same shall constitute a separate offense and shall be subject to a penalty as set forth in Section 25.20.030.

111.2 Partial Occupancy Permits. Upon the request of an owner or an owner's representative, a partial occupancy permit shall be permitted to be issued for a building, structure, or premises, provided that no conditions exist which endanger public life, safety, or welfare. Partial occupancy permits shall be permitted to be subject to conditions.

111.2.1 Accessible Type A Dwelling Units When Granting Partial Occupancy Permit. Before a partial occupancy can be approved, an accessible Type A unit must be completed in for sale multifamily residential buildings where 50% of the units are built out. This must be an accessible Type A dwelling that was designated on the approved building permit construction drawings or on an addendum. The unit must comply with ICC A117.1-2009 Chapter 10: Dwelling Units, Section 1003, Type A units.

If the accessible Type A dwelling unit on the original building permit construction drawings is not built out in the location shown, the architect of record shall submit revised construction drawings indicating the location of the new accessible Type A dwelling units within the building as an addendum to the original building permit application.

111.3 Certificate of Substantial Completion. Upon the request of the design professional of record, the building official shall be permitted to issue a Certificate of Substantial Completion for a building, structure, or premises before the entire work covered by the building permit has been completed provided there are no conditions existing which would endanger public safety, health, or welfare. Certificates of Substantial Completion shall be permitted to be subject to conditions. The owner can occupy or utilize the work or designated portion thereof for the use for which it is intended provided a partial occupancy permit has been applied for and issued by the building official.

111.4 Contents of the Occupancy Permit. When a building, structure, or premises is entitled thereto, the building official shall issue an occupancy permit within a reasonable period of time. The occupancy permit shall certify compliance with the provisions of this code and the purpose for which the building, structure, or premises will be used. The occupancy permit shall specify the use group in accordance with the provisions of Chapter 3 of the Building Code, the type of construction as defined in Chapter 6 of the Building Code, and any special stipulations and conditions of the building permit. Any building, structure, or premises for which an occupancy permit has been issued shall be permitted to be reinspected to confirm compliance with this code and the Zoning Ordinance.

111.5 By Whom Application Is Made. An application for an occupancy permit shall be made by the owner of record of the building, structure, or premises. If an occupancy permit application is made by any person other than the owner of record, a notarized letter or some other proof must be presented granting permission from the owner of record to the applicant to apply for the occupancy permit for the stated use. The full names, addresses, and telephone numbers of the owner, lessor, and applicant shall be stated. If the building is owned by a corporation, said notarized permission letter or other proof shall be signed by an officer or registered agent of that corporation. If the applicant for the occupancy permit is a corporation, an officer, registered agent, or other responsible person of that corporation shall sign the application stating their position with said corporation.

111.6 Posting of Occupancy Permit; Responsibilities. It shall be the duty or responsibility of the operator of every business to display a copy of a legally issued occupancy permit pertaining to the actual business in effect on the premises. It shall be the duty of the Saint Louis Police Department to enforce the provisions of this section. When the building official is informed of or suspects any violation of this code, it shall be the duty of the holder of an occupancy permit to allow the building official to inspect the building, structure, premises, or any portion thereof. Violation of this section shall result in revocation of said occupancy permit and shall be subject to penalties as set forth in Section 25.20.030.

111.7 Occupancy Permit Application Abandonment. Occupancy permit applications shall be abandoned 60 days after initial application if, in the opinion of the building official, the occupancy permit has not been diligently pursued.

Exception: Those buildings acquired from Land Reutilization Authority, in which case said occupancy permit applications shall be abandoned 180 days after initial application was filed.

111.8 Revocation. The building official is authorized to, in writing, suspend or revoke an occupancy permit or certificate of substantial completion issued under the provisions of this code whenever the permit is issued in error, on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

SECTION 112 SERVICE UTILITIES

112.1 Connection of Service Utilities. No person shall make connections from a utility, source of energy, fuel, or power to any building or system that is regulated by this code for which a permit is required until released by the building official.

112.2 Temporary Connection. The building official shall have the authority to authorize and approve the temporary connection of the building or system to the utility, source of energy, fuel, or power.

112.3 Authority to Disconnect Service Utilities. The building official shall have the authority to authorize disconnection of utility service to the building, structure, or system regulated by this code and the referenced codes and standards set forth in Section 102.4 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without the approval required by Section 112.1 or 112.2. The building official shall notify the serving utility and, wherever possible, the owner and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection, the owner or occupant of the building, structure, or service system shall be notified in writing as soon as practical thereafter.

SECTION 113 BOARD OF BUILDING APPEALS

113.1 Creation, Members, and Qualifications. There is hereby established a Board of Building Appeals consisting of seven members appointed by the Mayor, all of whom shall be residents of the City of Saint Louis; at least one of whom shall be a person engaged in the real estate business, one a Missouri licensed professional engineer, one a Missouri licensed architect, one a building contractor or subcontractor, one a person affiliated with the building and construction trades council, and two shall be citizens-at-large. There shall be four alternates who shall be permitted to be called when it is expected there will not be a quorum present. The alternates shall have all powers, protection, and stipends as the regular Board members in accordance with Civil Service provisions. The alternates shall be appointed by the Mayor for four year terms. One alternate shall be a Missouri licensed professional engineer or Missouri licensed architect; the other alternates shall be citizens-at-large. Alternates shall not make up the majority of the Board at any hearing.

113.1.1 Term of Office. New members shall possess the same qualifications as the persons in whose place they are appointed. This is an existing board and no current appointments shall be affected by this chapter. All subsequent appointments shall be for a term of four years and shall expire on an anniversary of the date of the original term, except appointments to fill vacancies which shall be for the unexpired term. Members whose appointed terms have expired shall be permitted to continue to serve until reappointed or replaced by a new appointee.

113.1.2 Procedures. The Board shall elect one of its members as Chairman who shall serve as such during the remainder of the calendar year and until a successor is elected. The Board shall from time to time adopt rules and regulations as shall be reasonably necessary to govern its procedure and to carry into effect the provisions of this code. These rules and regulations shall be available for review at the office of the Secretary to the Board during normal working hours. It shall be unlawful for any appellant or appellant's representative to contact any member of the Board on any matter that is pending or scheduled to be heard by the Board. If a Board member is contacted by an appellant on a matter pending before the Board other than during a Board hearing, that Board member must abstain from hearing or voting on the matter, as all testimony must be heard "sworn on the record."

113.1.3 Compensation. The Board of Building Appeals members shall be compensated for services rendered on a per meeting basis as established by ordinance and subject to budgeted funds availability.

113.2 Meetings; Witnesses; Minutes to Be Kept. Meetings of the Board shall be held at the call of the Chairman and at such other times as the Board by its rules shall be permitted to provide. The Chairman, or in the Chairman's absence, the Acting Chairman shall administer oaths. The Board shall act by a majority vote and a quorum shall consist of at least four members. The Board shall keep minutes of its proceedings showing the vote of each member on each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations of witnesses and other official acts. Transcripts of hearings shall be permitted to be kept in the custody of the court reporter and need not be transcribed unless requested. The party requesting the transcripts shall pay all costs of such transcripts required including a file copy for the Board, one for the Building Division, and one for the Board's legal staff.

113.3 Types of Appeals. Any person, firm, or corporation aggrieved by a decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection shall be permitted to file an appeal when the appellant alleges:

1. That there is an error in an order, requirement, decision, or interpretation of the building official, fire official, or of any other board, commission, or other officer in the enforcement of this code;

2. That the mode, method, or manner to be followed in the erection or alteration of any building or structure in any specific case before the Board is equal to or superior to the mode, method, or manner required by the provisions of this code;

3. That the material to be used in this specific case is equal to or superior to the materials required by the provisions of this code;

4. That any other board or commission exercising powers under this code or any other code or ordinance assigned to the Division of Building and Inspection wrongfully interpreted the provisions of the code or refused to grant a license, certificate, or permit under the provisions of such code.

Exception: The Board of Building Appeals has no jurisdiction or authority to hear and decide appeals on matters covered under the Americans With Disabilities Act, the Zoning Ordinance, and Cultural Resources Ordinance.

However, an application for occupancy, alteration, or repair of an existing building or structure which involves a change of occupancy or change of use group whereupon accessibility requirements apply, the building official's determination of change of occupancy or use group shall be allowed to be appealed to the Board of Building Appeals.

113.3.1 Criteria for Issuance of a Variance for Flood Hazard Areas. A variance shall only be issued upon:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration, or topography of the site render the elevation standards inappropriate.

2. A determination that failure to grant the variance would result in exceptional hardship by rendering the lot undevelopable.

3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, or extraordinary public expense or create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

4. A determination that the variance is the minimum necessary to afford relief considering the flood hazard.

5. Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

113.4 Filing Date. Unless otherwise specified in other sections of this code, appeals shall be filed within 30 calendar days after the decision of the building official, fire official, or any other board, commission, or other officer exercising their powers under this code or any other code or ordinance assigned to the Division of Building and Inspection is rendered; however, no such appeal shall be taken from any order or ruling wherein responsibility lies with the Board of Adjustment as established by the Zoning Ordinance or with any other board as established by the Revised Code of the City of Saint Louis.

Exception: Condemnation appeals shall be filed within ten calendar days of the date on the Notice of Condemnation as described in Section 119.8.

113.5 Manner and Fee for Filing Appeals. Appeals shall be taken by filing with the Secretary to the Board a notice of appeal on such forms as prescribed by the

Board of Building Appeals specifying the grounds thereof, and the Secretary shall immediately transmit to the Board such notice and all papers constituting the record upon which the action appealed from is taken. The notice of appeal shall be accompanied by a fee of $150.00.

113.5.1 Waiver of Appeal Fees. In the event the Secretary to the Board receives a written claim of indigence and a request for a fee waiver, the request shall be referred to the City Counselor's Office for approval or denial and that decision shall be final. A copy of that decision shall be kept on file.

113.5.2 Multiple Appeals. In the event that more than one building, structure, or premises owned by the same person, firm, or corporation has been cited for exactly the same violation and the owner has filed an appeal with the Board disputing the same citation, the appellant shall be permitted to file one appeal covering all said buildings, structures, or premises and be charged one appeal fee. The decision rendered by the Board shall apply to all buildings, structures, or premises involved in the appeal.

113.5.3 Board Hearings; Notification. After an appeal has been filed, the Secretary to the Board shall place the appeal on a Board hearing agenda and the appellant shall be notified in writing by certified mail prescribing the time, date, and location of the hearing not less than seven days prior to said hearing. Such hearing shall be held within a reasonable time after the filing of the notice of appeal, depending on the scheduling of other appeals.

113.6 Appeals to Stay Proceedings; Exceptions. Appeals shall stay all proceedings in furtherance of the action appealed from unless the building official or fire official certifies to the Board of Building Appeals after the notice of appeal has been filed that, by reason of the facts stated in the certificate, a stay would cause imminent peril to life or property. Proceedings shall not otherwise be stayed except by restraining order.

*113.7 Jurisdiction of the Board. T*he Board of Building Appeals is hereby empowered to hear and decide appeals in all matters described in Section 113.3

113.7.1 Board Decisions; Notification. The Board shall enter its order and decision after hearing, affirming, modifying, or reversing the order, requirement, interpretation, ruling, or decision of the building official in whole or in part. The Board shall be permitted to require conditions or restrictions as necessary to assure that the activity complies with the intent of this code or as the Board deems appropriate. If the appellant fails to appear at the prescribed time and location of the hearing and it has been determined that notice of the hearing was received, the appeal shall be dismissed and the original order, requirement, interpretation, ruling, or decision of the building official shall be affirmed. A final decision, when used in this section, shall mean a decision rendered by the Board of Building Appeals. The Board shall, upon rendering its final decision, notify the appellant of its order and final decision by mail. The appellant shall be deemed to have received the final decision three days after the final decision has been deposited in the United States mail with proper postage. The Board shall forward its order and decision to the building official, fire official, or any other board, commission, or officer exercising their powers under this code in writing and place a copy of the decision in its files. There shall be no rehearing or reopening of that file by the Board except where the Board has required conditions or restrictions and it is to be determined whether the conditions or restrictions have been met. No information concerning any decision reached by the Board shall be made public except to the appellant until that decision has been signed and the appellant has first been formally notified.

113.7.2 Generic Decisions. In the event that the Building Commissioner finds that a specific decision of the Board of Building Appeals would be helpful in the continued administration of this code if it were made to be generically applicable, the Building Commissioner shall be permitted to petition the Board in writing requesting that the decision of a specific case be made generically applicable, in part or in whole, without the need for individual appeals and shall become a part of the policy of the Division of Building and Inspection. This request must be made within 180 calendar days of the rendering of the decision. The Board shall only affirm or deny such petition.

113.7.3 Conditional Decisions; Method of Rehearing. When the Board of Building Appeals enters a conditional decision modifying or reversing an order of the building official and grants additional time to correct the violation(s), the Board shall grant no more than 90 days. Additional time shall be permitted to be granted if, in the opinion of the building official, sufficient progress is being made to correct the violation(s). In the event insufficient progress is being made to correct the violation(s) in the allotted time, the case shall be referred back to the Board of Building Appeals to

show cause why the conditions set by the Board have not been met and why the building official's original order or decision should not be affirmed. In the event of such referral back to the Board, notification to the appellant prescribing the date, time, and location of said hearing shall be the same as that described in Section 113.5.3.

113.8 Appeals from Decisions of the Board. Any person(s) jointly or severally aggrieved by the decision of the Board of Building Appeals shall be entitled to a judicial review of the decision rendered by the Board of Building Appeals as provided in the Administrative Procedure and Review Act of the State of Missouri, being Sections 536.100—536.140 of the Revised Statutes of Missouri.

113.9 Hearing Officer. The Board of Building Appeals shall have the right to appoint a hearing officer to hear and render a decision on any appeal filed with the Board of Building Appeals.

113.9.1 Qualification. The hearing officer shall be an attorney and on an approved list of attorneys who have administrative law experience. The Director of Public Safety shall compile and maintain said list.

113.9.2 Rights and Duties. The hearing officer shall have such rights, responsibilities, and duties as the Board of Building Appeals and the appellants shall have the same rights as an appellant appearing before the Board of Building Appeals, including the right to appeal pursuant to Missouri's Administrative Procedure and Review Act.

SECTION 114 VIOLATIONS

114.1 Unlawful Acts. It shall be unlawful for any person, firm, or corporation to grade for, excavate for, erect, construct, alter, extend, repair, move, remove, demolish, or occupy any building, structure, premises, or equipment regulated by this code or cause same to be done in conflict with or in violation of the provisions of this code or any decision or order of the Board of Building Appeals.

114.2 Notice of Violation. The building official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or on the person responsible for the grading, excavating, erection, construction, alteration, extension, repair, moving, removal, demolition, or occupancy of a building, structure, or premises in violation of the provisions of this code, or in violation of a detail statement or construction documents approved hereunder, or in violation of a permit or certificate issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the building official.

114.2.1 Investigation of Records. Upon the receipt of a written request from the owner of the property, or the real estate agent for the property, or the attorney, architect, or engineer representing the owner of the property, the Permit Section Supervisor shall ask the various Building Division sections for copies of any existing violation letters concerning the property. If the request is not on the owner's letterhead, a notarized authorization from the owner must be submitted.

The response letter written by the permit section supervisor shall list any known violations and must contain the following statement: "This letter does not certify that there are no actual existing violations of the ordinances for which the Division of Building and Inspection is responsible. To determine if there are any violations of any ordinances, an application for an occupancy permit must be filed in accordance with Section 111.5 and the subsequent inspections completed. This letter does certify there are no existing letters of violation on record other than those attached herein. There will be a $25.00 fee charged for this service. Five working days will be allowed to respond to this request."

114.3 Prosecution of Violation. If the notice of violation is not complied within the time prescribed by such notice, the building official is authorized to request the legal counsel of the City of Saint Louis to institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of the unlawful occupancy of the building, structure, or premises in violation of the provisions of this code or of the order or direction made pursuant thereto.

114.4 Violation Penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters, or repairs a building or structure in violation of the approved construction documents or directive of

the building official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as prescribed by law.

114.5 Abatement of Violation. The imposition of penalties as set forth in Section 25.20.030 shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction; to restrain, correct, or abate a violation; to prevent illegal occupancy of a building, structure, or premises; or to stop an illegal act, business, or use.

SECTION 115 STOP WORK ORDER

115.1 Authority. Whenever the building official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the building official is authorized to issue a stop work order.

115.2 Issuance. The work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.

115.3 Emergencies. When an emergency exists, the fire official shall not be required to give a written notice prior to stopping the work.

115.4 Unlawful Continuance. Any person who shall continue any work in or about the building, structure, or premises after having been served with a stop work order, except such work as they are directed to perform to remove a violation or unsafe condition, shall, upon conviction thereof, be subject to the penalties as set forth in Section Four of the adopting ordinance. Each day that a violation continues shall constitute a separate and distinct offense.

SECTION 116 UNSAFE BUILDINGS, STRUCTURES, AND EQUIPMENT

116.1 Conditions. Buildings, structures, or equipment that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress, facilities, or light and ventilation; which constitute a fire hazard; are otherwise dangerous to human life or the public welfare; or which involve illegal or improper occupancy or inadequate maintenance shall be deemed unsafe. Unsafe buildings or structures shall be taken down and removed or made safe as the building official deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.

116.2 Record. The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

116.3 Notice. If an unsafe condition is found, the building official shall serve on the owner, agent, or person in control of the building or structure a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition, or that requires the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare immediately to the building official acceptance or rejection of the terms of the order.

116.4 Method of Service. Such notice shall be deemed properly served if a copy thereof is (a) delivered to the owner personally; (b) sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested; or (c) delivered in any other manner as prescribed by local law. If the certified or registered letter is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

116.5 Restoration. Where the building, structure, or equipment determined to be unsafe by the building official is restored to a safe condition to the extent that repairs, alterations, or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of Section 105.2.2 and the Existing Building Code.

SECTION 117 PROFESSIONAL ARCHITECTURAL AND ENGINEERING SERVICES

117.1 Responsibilities. The provisions of this section shall define the construction controls required for buildings involving professional architectural or engineering services and delineate the responsibilities of such professional services during construction.

117.1.1 Design. All design for new construction, alteration, repair, expansion, addition, or modification work involving the practice of professional architec-

ture or engineering as defined by the statutory requirements of the professional licensing laws of the State of Missouri shall be prepared by licensed design professionals certified by the Missouri Board for Architects, Professional Engineers, Professional Land Surveyors and Professional Landscape Architects. All construction documents required for a building permit application for such work shall be prepared by or under the direct supervision of a Missouri licensed design professional and bear their seal, signature, and date in accordance with the state's statutes and regulations governing the professional licensing and certification of architects, professional engineers, professional land surveyors, and professional landscape architects.

117.1.2 Review. The Missouri licensed design professional whose seal is on the approved construction documents shall be responsible for review of shop drawings and samples as required by the approved construction documents and for approval for conformance to the design concept and this code. This review process shall be permitted to be contracted by the owner to another Missouri licensed design professional should the original design professional not desire to provide such services.

117.1.3 Application of Seal, Signature, and Date. All construction documents submitted with an application for a building permit shall comply with Section 107.1.1.

117.1.4 Reproduction of Sealed Documents. Construction documents sealed by a Missouri licensed design professional shall not be reproduced for anyone, other than the owner, without the expressed written permission of Missouri licensed design professional who sealed said documents, or as ordered by a court of law.

117.2 Special Professional Services. When applications are filed for unusual designs or magnitude of construction which require construction document review or inspection services beyond the capacity of the building official's staff or where referenced standards require special architect or engineer inspections, the building official shall be permitted to require the owner to retain a properly qualified Missouri licensed design professional to perform the services necessary for code compliance in addition to that provided in Section 117.1.2. This project representative shall keep daily records and submit reports as required by the building official. Upon completion of the work, the Missouri licensed design professional shall file a final report indicating whether or not all required inspections were performed and listing pertinent deviations from the Building Code requirements or from the approved construction documents and the source of authority for such deviations.

117.2.1 Building Permit Requirement. The necessity for special professional services shall be determined prior to issuance of the building permit unless waived to a later date by the building official. Refusal by the applicant to provide such services as required by the building official shall result in the denial of the permit.

117.2.2 Fees and Costs. All fees and costs related to the performance of special inspection services shall be borne by the owner.

117.2.3 Visits to Site. When so directed by the building official or when required by the special inspection provisions of this code, the Missouri licensed design professional shall make visits to the site at intervals appropriate to the stage of the construction to observe the progress and quality of the work; to observe construction components requiring controlled materials or construction as specified in Chapter 44, Referenced Standards; and to determine if the work is proceeding in accordance with the construction documents approved for the building permit. The Missouri licensed design professional shall periodically submit reports to the building official showing the results of such periodic visits.

SECTION 118 WORKMANSHIP

118.1 General. All work shall be conducted, installed and completed in a neat, workmanlike and acceptable manner so as to secure the results intended by this code.

SECTION 119 CONDEMNATIONS

119.1 Notification. If upon making an inspection and examination of any occupied or unoccupied building, structure, or premises, the building official finds one or more of the defects described below, the building official shall notify in writing, as provided in Section 119.2, the owner(s) of said building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office of the defects found in said building, structure, or premises and shall order them to proceed to properly demolish, repair and secure, or correct all conditions causing condemnation of said building, structure, or premises within seven days. This

document is to be known as a Notice of Condemnation. If the conditions have not been corrected by the date listed in the notice, the building, structure, premises, or portion thereof or appurtenance thereto will be condemned and shall be required to be vacated, if occupied, and secured. Possible defects shall be permitted to be one or more of the following:

1. The building or structure is in a condition which endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

2. The condition of the building or structure by reason of the making of an excavation on the lot on which it is located, or any adjoining lot, endangers either the lives or safety of persons, whether occupants or otherwise, or other property;

3. The building, structure or premises is a fire hazard for any reason, including, without limitation: obsolescence; dilapidation; deterioration; damage; lack of sufficient fire-resisting qualities; poor sanitation; or faulty electrical wiring, gas connections, or heating apparatus;

4. The building or structure lacks safe or adequate facilities for means of egress in case of fire or panic;

5. The building or structure has any one or more of the following conditions:

A. Improperly distributed loads upon the floors or roof;

B. Overloaded floors or roofs;

C. Insufficient strength to be reasonably safe for its actual or intended use;

6. Any portion of the building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause, that the building or structure is no longer safe or suitable for its actual or intended use;

7. Any interior or exterior portion, member, appurtenance, ornamentation, or any other component of the building or structure is likely to fall or collapse, or become detached or dislodged and thereby injure persons or damage property;

8. Any portion of the building or structure has racked, warped, buckled, or settled to such an extent that its walls or other structural portions have insufficient resistance to fire, earthquake, wind, flood, or similar perils;

9. Part or all of the building or structure is in danger of collapsing for any reason;

10. The building or structure has exterior walls or other vertical structural members which list, lean, or buckle;

11. The building, structure, or premises or any portion thereof is, for any reason, unsafe for its actual or intended use;

12. The building or structure has been so damaged by fire, earthquake, wind, flood, vandalism, malicious mischief, or any other cause or has become so dilapidated, deteriorated, or decayed as to come within any one or more of the following categories:

A. The building or structure will attract and result in harm to children;

B. The building or structure is, or is likely to become, a harbor for vagrants or criminals;

C. The building or structure enables persons to resort thereto for the purpose of committing unlawful acts;

13. The building, structure, or premises has been constructed, exists, or is being maintained in violation of any provisions of this code or of any law of the City of Saint Louis;

14. The building or structure does not have the strength, fire-resisting qualities or weather-resisting qualities required by this code for newly constructed buildings of like area, height, and occupancy;

15. The building, structure, or premises is used or intended to be used for purposes that are likely to injure the health, safety, or welfare of persons who occupy or could occupy said building or structure by reason of any one or more of the following conditions:

A. Inadequate maintenance, dilapidation, deterioration, decay, or damage;

B. Faulty construction;

C. Inadequate light, ventilation, or sanitation facilities;

D. The building, structure or premises is being used for any illegal purposes;

16. Any portion of the building or structure has been left remaining on a site after its demolition or destruction;

17. The building or structure is vacant for a period in excess of six months and because of its condition is unsafe, unsanitary, or endangers property or public health, safety, or welfare;

18. The building or structure is vacant and has been ordered secure or has been secured by order of the building official for a period in excess of twelve months

and has been condemned for occupancy or has been used in the commission of a crime subsequent to being ordered secured or being secured.

19. The building or structure is only partly constructed and construction has stopped for a period in excess of six months, and because of its condition, affects the health, safety and welfare of the adjacent properties.

119.1.1 Evacuation Order; Failure to Comply. Any person who refuses to leave, interferes with the evacuation of other occupants, or continues any operation after having been given an evacuation order by the building official, except such person(s) directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section whereupon it shall be the duty of the Police Department to immediately remove such person from said building, structure, or premises and prevent anyone from re-entering the building, structure, or premises until such time that the Police Department shall have been notified by the Division of Building and Inspection that the same is in a safe condition. Any person who shall violate this section shall be guilty of a misdemeanor and subject to the penalties as set forth in Section 25.20.030.

119.1.2 Dangerous Conditions. Whenever the building official shall find any building, structure or premises in such a condition that it presents a safety hazard, but not dangerous enough to warrant condemnation and demolition, and repair is relatively small in relation to the building as a whole, the building official shall post a sign on the premises which reads as follows:

WARNING ALL PERSONS ARE WARNED TO USE EXTREME CAUTION IN OR AROUND THESE PREMISES

Additionally, a letter shall be posted indicating those conditions in violation of this code and a copy of said letter shall be mailed to the owner(s) of said building, structure, or premises.

119.2 Service of Notice. The notice to the owner(s) of the building, structure, or premises found by the building official to be in violation of this code shall be directed to the owner(s) of such building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office. The notice shall be served in one of the following ways:

1. Delivering directly to owner(s).

2. Posting a copy of said notice upon the building, structure, or premises.

3. Mailing a copy of said notice by regular mail, postage prepaid, direct to owner(s)' place of business or the address currently recorded in the Assessor's Office of the City of St. Louis.

4. Publication in a newspaper of general circulation in the City of Saint Louis.

119.2.1 Posting Copy of Notice. In case such building, structure, or premises is in the occupancy of a tenant(s), in addition to the above notice it shall be the duty of the building official to post a copy of such notice upon said building, structure, or premises. It shall be a violation of this code for any person to remove any notice or copy thereof lawfully posted pursuant to this code unless otherwise ordered by the building official.

119.3 Failure to Comply; Authority to Enter into Contracts. If the owner(s) fail to comply with the order of the building official by the date indicated in the Notice of Condemnation and in such a manner that can be approved by the building official, then such owner(s) shall have violated this code and the building official shall be permitted to forthwith proceed to undertake and complete whatever work is necessary to eliminate the dangerous condition. The Building Commissioner shall have the authority to enter into contracts with no other review, signature, or approval (except for insurance) from any other City agency. Such contracts shall be permitted to include, but not be limited to, demolition, environmental investigation, remedial work, professional, or contractual services. Competitive bids shall not be required for emergency situations where there is a danger to life or property. The cost of such work performed by the building official under the provisions of Sections 119 or 120 shall be paid for by the City of Saint Louis. The building official shall certify to the Comptroller the cost of such work including the administrative costs incurred by the Division of Building and Inspection in performing said work, but in no event shall such administrative costs exceed ten percent of the contract price incurred by the Division of Building and Inspection in performing such work. The Comptroller, upon certification by the building official of the cost expended for said work, shall prepare bills for such work against the owner(s) of said building, structure, or premises. In case said bills are not paid upon presentation, they shall be referred to the City Counselor, who shall proceed to collect same

by suit or lien if necessary, and the amounts when collected shall be credited to a special revolving fund for the purposes herein designated.

119.3.1 Secured Buildings. For a building or structure to be "secured" in those cases in which securing is specifically required by this code, a covering shall be placed over all doors, windows, or other openings at the first floor level; all doors and windows that are accessible from any porch, service stair, or fire escape; and all basement or cellar windows. This cover shall consist of not less than ⅜ inch plywood or other such material approved by the building official attached to the framing of all such doors and windows by wood screws, or any other material approved by the building official, of a minimum length of 1½ inches, placed not more than twelve inches on center. Such plywood or other such material approved by the building official shall be painted with a minimum of two coats of exterior grade paint of a brick red or other color which is approved by the building official. It shall be the duty and responsibility of the building official to re-enter any premises or building or portion thereof that has previously been secured and boarded either by the City of Saint Louis or any other party when, in the opinion of the building official, there is reason to believe that there happens to be new or additional violations of this code. The building official shall not be held responsible for any damage to the building, structure, or premises caused by the act of securing.

119.3.2 Reentry of Secured Buildings. The occupancy of any building or structure which has been ordered secured or has been secured by order of the building official shall be prohibited until the owner of said building or structure obtains a certificate of inspection or an occupancy permit from the building official. Work performed on any building or structure as a prerequisite to a certificate of inspection shall not be considered occupancy of said building or structure.

119.4 Building Not to Be Rented or Leased. No owner or agent of the owner of any building, structure, or premises, after notice from the building official that such building, structure, or premises is unsafe or dangerous, shall rent or lease the same or any part thereof or collect any rent therefor until such building, structure, or premises has been placed in a safe and secure condition. The building official shall be permitted to require an occupancy permit to be issued prior to occupancy or re-occupancy. Any person found guilty of violating the provisions of this section shall be subject to the penalties as set forth in Section 25.20.030 regarding fine and imprisonment. Each day that a violation continues constitutes a separate and distinct offense.

119.5 Cost; Method of Payment; Lien; Penalty. The building official shall have the authority to require any violator of this code to correct, remove, or abate any condition caused or permitted by them in violation of this code; and the building official shall be permitted to correct, remove, or abate the same upon their failure to comply with the requirements of this code when the public interest so requires. For all emergency condemned buildings or structures, the building official shall have the authority to receive and publicly open bids and award the contract to the lowest qualified bidder meeting the specifications without first sending said contract to the Comptroller. These contracts shall be signed by the Building Commissioner and countersigned by the Director of Public Safety and shall have the full effect of a City contract. All costs attending such action in such cases shall be paid from the appropriate fund as provided in Section 119.3 and then collected from the party offending as therein provided. A lien for such costs shall be placed against the property whereon such violation was permitted to exist. The cost shall also be certified to the Collector of Revenue or other official collecting real estate taxes, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid. These bills or liens shall not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such bills or liens. Further, board-up and demolition bills shall be permitted to be waived when ownership of said property for which the bill or lien was issued is accepted by Land Reutilization Authority, Saint Louis Development Corporation, or any other City agency. Any person, firm or corporation who shall refuse or neglect to comply with the provisions of this section or who shall violate any of the provisions thereof shall be subject to the penalties as set forth in Section 25.20.030. In addition, any payments deemed to be in arrears shall be subject to interest charges at a rate set by the Comptroller.

119.5.1 Prohibited Expenditures. The building official shall not expend any monies for demolition of buildings owned by Land Reutilization Authority, Op-

eration Impact, Saint Louis Development Corporation, Port Authority, or any other governmental agency except in emergency situations where immediate action is required to preserve public health, safety, and welfare.

119.6 Vacation of Buildings; Duties of Police; Penalty. Upon effecting condemnation of any building, structure, or premises by the building official, it shall be unlawful for any person to enter or remain in or on such building, structure, or premises until such time as the Police Department shall have been notified in writing by the building official that the same is in a safe condition. It shall be the duty of the Police to remove any person from such building, structure, or premises so condemned and to prevent any person from entering same until such time as the Police Department shall have been notified in writing by the building official that such building, structure, or premises is in compliance with this code. The provisions of this section shall not apply to licensed security guards or persons directly employed in securing the building, structure, or premises or otherwise abating the conditions causing the condemnation. Any violation of this section of the code shall be subject to the penalties as set forth in Section 25.20.030.

119.7 Removal of Decayed or Unsafe Trees. Whenever it shall come to the knowledge of the Forestry Commissioner that any tree on private property is in such a decayed or dangerous condition as to endanger the lives of persons or is likely to cause immediate damage to the property of others, the Forestry Commissioner shall cause said tree to be removed or cause such dangerous conditions to be remedied by the owner of the property whereon it is situated. The powers and duties of the Forestry Commissioner in respect to any such tree, the notice to the owner of the property whereon it is located, the cost of its removal or remedying the dangerous condition caused thereby, the lien of such cost, the method of its collection, the penalties to be incurred by the owner, and the procedure to be followed by the Forestry Commissioner shall, as nearly as practicable, be those prescribed by this section in respect to the building official's procedures for buildings and other structures which are in a dangerous condition.

If the Forestry Commissioner cannot secure removal of the dangerous tree by Forestry Division forces or by response of the owner to the Forestry Division notice, the Forestry Commissioner shall be permitted to request the assistance of the building official in condemning the tree and securing removal after emergency or public bid by private contractors resulting in a City of Saint Louis contract to remove the tree.

The condemnation, if appealed to the Board of Building Appeals, shall require the defense testimony of Forestry Division personnel knowledgeable about trees.

The Building Division shall be permitted to make available for tree removal contracts on private property a sum not to exceed five percent of the first two hundred thousand dollars of general fund demolition monies appropriated in a fiscal year, in addition to not more than three percent of any appropriated amount over $200,000.00. The Forestry Division will prepare bid specifications and receive, process, and award such contracts billable to the Building Division demolition account subject to the dollar limits above. This procedure is for dead or dangerous trees on private property only and is not for encroachments, trimming, pruning, or other concerns.

119.8 Appeal. Any person aggrieved by the decision of the building official pursuant to Sections 119.1 through 119.7 shall be permitted to appeal such decisions to the Board of Building Appeals within ten calendar days of the date on the Notice of Condemnation. The Condemnation Committee of the Board of Building Appeals, selected by the Chairman, shall hear said appeal and render its decision affirming, modifying, or reversing the decision of the building official and, to such end, shall possess all the powers on appeal granted the building official under Sections 119.1 through 119.7. Such decision shall be subject to the procedures and review provided by the Administrative Procedure and Review Act of the State of Missouri. Filing of an appeal of any portion of Sections 119.1 through 119.7 does not stay any action provided in these sections.

119.9 Penalties. If the owner(s) fail to repair, demolish, or otherwise comply a building, structure, or premises as ordered by the Notice of Condemnation of the building official pursuant to Section 119.2 either within the seven-day period specified in Section 119.1 or within ten days after any appeal from said notice as provided in Section 119.8 is finally adjudicated adversely to said owner(s), then said owner(s) shall be guilty of a violation of this section and shall, upon

conviction thereof, be subject to penalties as set forth in Section 25.20.030. Each day that any violation continues shall constitute a separate and distinct offense.

119.10 Responsibility of Ownership.

1. *Disclosure.* It shall be unlawful for any seller or grantor to convey, give, or transfer property to any buyer or grantee without first disclosing in writing to the buyer or grantee the existence of all Notices of Condemnation or any other violations of this code. The grantor shall keep and make available for inspection by the building official such disclosure signed by the grantee for a period of one year from the conveyance, gift, or transfer.

2. *Liability to Prosecution and Conviction.* Any person shall be permitted to be prosecuted and convicted for violation of Section 119.1.1, notwithstanding that said person has not been given the notice specified in Section 119.1, provided that the building, structure, or premises in question had one or more of the defects described in Section 119.1 during the period that said person was responsible for said building, structure, or premises as owner, corporate officer, partner, or otherwise, and provided further that said prosecution is commenced during the one-year period after said person ceased to be so responsible.

3. *Liability to Suit and Judgment.* Any person shall be permitted to be sued by and held liable to the City of Saint Louis, as provided in Section 119.3, for funds expended by the City of Saint Louis pursuant to said section, notwithstanding that said person has not been given the notice specified in Section 119.1, provided that the building, structure, or premises in question had one or more of the defects described in said section during the period that said person was responsible for said building, structure, or premises as owner, corporate officer, partner, or otherwise, and provided further that said suit is commenced during the one-year period after said person ceased to be so responsible.

Owner(s) are presumed by law to know the conditions of their property whether or not such notice was given. Notices sent to the address of the owner(s) shown on the City of Saint Louis Assessors Office records on the date sent shall constitute legal notice in accord with Section 119.2.

119.11 Dangerous, Hazardous, Unsanitary, or Unapproved Plumbing, Mechanical, and Electrical Installations. The building official shall have the authority to seal out of service the items listed below when, in the building official's opinion, any of these items are in an unsafe, hazardous, or unsanitary condition; if a Certificate of Inspection has not been issued by the building official; or if the installation was made without obtaining the necessary permit(s):

1. Plumbing equipment, fixtures, piping, devices, and appurtenances covered by the Building and Plumbing Codes;

2. Mechanical equipment, devices, and appurtenances covered by the Building and Mechanical Codes.

3. Electrical equipment, fixtures, devices, wiring, and appurtenances covered by the Building and Electrical Codes;

119.11.1 Notice of Sealing Out of Service. Before sealing any device out of service, the building official, except in cases of emergency, shall serve seven days written notice upon the building owner(s) or occupant(s) by United States mail stating intention to seal the equipment out of service and the reasons therefor. Notice shall be permitted to alternately be served by posting upon or immediately adjacent to the device proposed to be sealed.

119.11.2 Unlawful to Remove or Tamper with Seal. Any device sealed out of service by the building official shall be plainly marked with a sign or tag indicating such sealing and any defacing or removal of the sign or tag, any tampering with or removal of the seal without approval of the building official, or operation of the sealed unit shall constitute a violation of this code and shall subject the violator to the penalties as set forth in Section 25.20.030.

119.12 Cancellation of Condemnation. The building official shall have authority to cancel prior condemnations either for defects or for occupancy. A condemnation shall be permitted to be rescinded by the building official only after, in the official's opinion, all necessary repairs are made to such building, structure, or premises or otherwise compliance is obtained with the building official's orders to make such building, structure, or premises safe or occupiable and defects noted have been corrected.

1*19.12.1 Notice of Cancellation of Condemnations.* Upon cancellation of a condemnation, a notice shall be directed to the owner(s) of the building, structure, or premises stating that the condemnation has been canceled. The service of such notice shall be done in the same manner as provided for in Section 119.2.

119.13 Vacant Building Inspection. The building official shall cause to be inspected any property that potentially is subject to the registration fee as estab-

lished in Section 109.2.12. The inspecting officer shall report his findings and it shall be determined whether any such property shall be subject to the registration fee by the City. Within five business days of such determination, the building official shall notify by mail the owners of property on which the registration fee has been levied at the last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the building official to the municipal court within 30 days of such notification. Absent the existence of any valid appeal or request for reconsideration the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the building official.

119.13.1 Reconsideration. Should the property owner, within 30 days of the building official making such notification, complete any improvements to the property that would be necessary to revoke the levy of the registration fee, they shall request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the building official revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the building official affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the building official.

119.13.2 Payment and Penalties. The building official shall establish procedures for the payment of the registration fee and penalties for delinquent payment of such fees. Any registration fees which are delinquent for a period of one year shall become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations cited by the building official have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party said lien shall be considered released and the delinquent registration fee forgiven.

SECTION 120 EMERGENCY MEASURES

120.1 Procedure. When, in the opinion of the building official, a building, structure, or premises poses an immediate or imminent danger to the public health, safety, or welfare as defined in Section 119.1, the building official shall order the immediate evacuation and securing of said building, structure, or premises and shall be permitted to order all utilities to be disconnected without sending a notice. Each principle entrance shall be posted with a notice which reads as follows:

DANGER THIS PREMISES IS UNSAFE AND HAS BEEN CONDEMNED

ALL PERSONS ARE WARNED TO KEEP AWAY

Any person who refuses to leave, interferes with the evacuation of other occupants, occupies, or continues any operation after the property has been posted pursuant to this section, except such person(s) who is directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section and it shall be the duty of the Police Department to immediately remove such person(s) from said building, structure, or premises and prevent anyone, unless approved by the building official, from reentering the building, structure, or premises until such time that the Police Department shall have been notified that the same is in a safe condition. The building official assumes no responsibility for persons entering upon said property, and said persons proceed at their own risk and assume all liability.

120.2 Temporary Safeguards. When, in the opinion of the building official, there is actual and immediate danger of collapse or failure of a building or structure or any part thereof which would endanger life, the building official shall be permitted to cause the necessary work to be done to render such building or structure or part thereof temporarily safe whether or not the legal procedure herein described has been instituted.

120.3 Closure. When necessary for public safety, the building official shall temporarily close sidewalks, streets, buildings, structures, and places adjacent to such unsafe building, structure, or premises and prohibit the same from being used.

120.3.1 Catchment Enclosures. If, in the opinion of the building official, it is determined that there exists an imminent structural hazard, catchment enclosures shall be erected protecting adjoining property and the public right-of-way. The cost for such catchment enclo-

sures shall be the responsibility of the owner of record immediately adjacent to the catchment enclosure and the recovery of said costs will be as described in Section 120.5.

120.4 Emergency Repairs; Remedies. For the purpose of this section, the building official shall be permitted to employ the necessary labor and materials to perform the required work as expeditiously as possible. Further, when it is found that potable water is running inside a vacant building or structure and the owner or the owner's representative cannot be contacted, and where severe structural or other damage can thus occur to adjacent properties, the Building Commissioner or the Health Commissioner shall be permitted to order the Water Division to cease the problem flow by whatever means the Water Division finds necessary. The Water Division shall comply with any order issued pursuant to this section.

120.5 Cost of Emergency Repairs or Demolition. Costs incurred in the performance of emergency work shall be paid from the Treasury of the City of Saint Louis on certification of the building official. The legal counsel of the City of Saint Louis shall institute appropriate action against the owner(s) of the premises where the unsafe building or structure is or was located for the recovery of such costs plus a ten percent administrative fee. If such cost is not collected, a lien shall be requested to be placed upon the property by the Comptroller. The costs shall also be certified by the Collector of Revenue or other official collecting real estate taxes, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid.

120.6 Emergency Demolition or Removal. If, in the opinion of the building official, a building, structure, tree, or premises, in whole or in part, poses an immediate and imminent danger to the public health, safety, or welfare by virtue of its condition or conditions in violation of this code, the building official shall be permitted to cause the immediate removal of said building, structure, or tree without the notice set forth elsewhere in this code. Further, the building official shall have the authority to award a sole source contract for demolition of said dangerous building, structure, or tree.

SECTION 121 REGISTRATION OF VACANT BUILDINGS

121.1 Vacant Building Registration Fee. The owner of any parcel of residential property improved by a residential structure or of commercial property improved by a structure containing multiple dwelling units which is vacant and has been vacant for at least six months and which is in violation of this code shall pay a semiannual registration fee of two hundred dollars.

121.2 Inspection. The Building Commissioner or his designee shall inspect any property that may be subject to the registration fee established in Section 121.1. The inspecting officer shall report his findings and recommendations and the Building Commissioner or his designee shall determine whether any such property shall be subject to the registration fee. Within five business days of such determination, the Building Commissioner or his designee shall notify by mail the owners of property on which the registration fee has been levied at their last known address according to the records of the office of the Assessor. The property owner shall have the right to appeal the decision of the Building Commissioner to the municipal court within thirty days of such notification. Absent the existence of any valid appeal or request for reconsideration pursuant to Section 121.3, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the decision of the Building Commissioner.

121.3 Revocation of Fees. Within thirty days of the Building Commissioner making notification pursuant to Section 121.2, the property owner may complete any improvements to the property that may be necessary to revoke the levy of the registration fee and then may request a reinspection of the property and a reconsideration of the levy of the registration fee by the City. If the Building Commissioner or his designee revokes the registration fee, no such assessment shall be made and the matter shall be considered closed. If the Building Commissioner or his designee affirms the assessment of the registration fee, the property owner shall have the right to appeal the reconsideration decision of the Building Commissioner to the municipal court within thirty days of such decision. Absent the existence of any valid appeal to the municipal court or other court of competent jurisdiction, the registration fee shall begin to accrue on the beginning of the second calendar quarter after the reconsideration decision of the Building Commissioner.

121.4 Payment of Fees. The Building Commissioner is hereby authorized to establish procedures for the payment of the registration fee and penalties for delinquent payments of such fees. Any registration fees which are delinquent for a period of one year shall

become a lien on the property and shall be subject to foreclosure proceedings in the same manner as delinquent real property taxes. The owner of the property against which the assessment was originally made shall be able to redeem only by presenting evidence that the violations of the applicable code cited by the Building Commissioner have been cured and presenting payment of all registration fees and penalties. Upon bona fide sale of the property to an unrelated party, said lien shall be considered released and the delinquent registration fee forgiven.

121.5 Registration. The property owner shall provide their name, street address, phone number, and email address to the Assessor's Office. If the property owner does not reside in Missouri or Illinois, the property owner is required to provide the name, street address, and telephone number of a natural person eighteen years of age or older designated by the property owner as the authorized agent for receiving notices of code violations and for receiving process in any court proceeding or administrative enforcement proceeding on behalf of such owner or owners in connection with the enforcement of this code. This person must maintain an office in either the State of Missouri or Illinois or must actually reside in either the State of Missouri or Illinois. The Building Commissioner shall be responsible for providing the information to the City Information Technology Services Agency and the information shall be available through the Geo St. Louis website.

121.6 Vacant Building Maintenance. The owner of any building that has become vacant shall, within thirty days, do the following:

1. Enclose and secure the building as defined under Section 119 of this code. All doors must be properly secured and windows on all floors of the building shall be properly secured.

2. Maintain the building in a secure and closed condition until the building is again occupied or until repair or completion of the building has been undertaken.

121.7 Collected Funds. The Comptroller of the City of St. Louis is hereby authorized and directed to establish a Special Account to be known as the Vacant Building Initiative Fund in which all funds received pursuant to this section shall be deposited and such funds shall be kept separate and apart from all other funds. One half of such funds are hereby appropriated for the costs associated with this section and other costs associated with code enforcement pertaining to vacant property. One half of such funds shall be distributed to the City's Community Development Administration for purposes of offering grants to reduce and prevent vacant and blighted property. All interest generated on deposited funds shall be accrued to the Vacant Building Initiative Fund Account.

121.8 Penalties. If an owner fails to pay the registration fee under Section 121.1 thirty days after the registration fee is assessed, a penalty shall be assessed of $250.00 per occurrence. Any owner found to be in violation of provisions of Section 121.5 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Any owner found to be in violation of provisions of Section 121.6 shall be subject to a fine of not more than $500.00, to a term of imprisonment of not more than ninety days, or to both a fine and imprisonment. Every day that a violation continues shall constitute a separate and distinct offense.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Modify Section 202 Definitions by the addition or changing of definitions to read as follows:

Accessible. Describes a site, building, facility, or portion thereof that complies with this code and ICC A117.1-09 Accessible and Useable Buildings and Facilities and that can be approached, entered, and used by a person with a disability.

Accessible route. A continuous unobstructed path connecting all accessible elements and spaces in a building or facility which can be negotiated by a person with a severe disability using a wheelchair and which is also safe for and useable by people with other disabilities. Interior accessible routes include corridors, floors, ramps, elevators, lifts, and clear floor space at fixtures. Exterior accessible routes include parking, access aisles, curb ramps, walks, ramps, and lifts.

Alteration. Any construction or renovation to an existing building or structure other than repair or addition. Alterations are classified as Level 1, Level 2 and Level 3.

Balcony. A projecting platform on a building, sometimes supported from below, sometimes cantilevered enclosed with a railing or balustrade.

Building. Any structure occupied or intended for supporting or sheltering any occupancy. For application of this code, each portion of a building which is completely separated from other portions by fire walls complying with Section 706.0 of the Building Code shall be considered as a separate building.

Building official or *code official.* The Building Commissioner of the City of Saint Louis or any duly authorized representative.

Change of occupancy. A change in the purpose or level of activity within a building or structure that involves a change in the application of the requirements of this code. Change of occupancy requirements apply both to a change in which the use group classification under Chapter 3 of the Building Code remains the same and one in which it changes.

Construction cost. The cost of all construction portions of a project, generally based upon the sum of the labor and materials used in the performance of the construction contract and other direct construction cost; does not include the compensation paid to the architect and consultants, the cost of the land, right-of-way, or other costs which are defined in the construction documents as being the responsibility of the owner.

Dwelling unit or sleeping unit, type A. A dwelling unit or sleeping unit designed and constructed for accessibility in accordance with Section 1002 of ICC A117.1 Accessible and Useable Buildings and Facilities. A Type A (accessible) dwelling unit has all required knee and toe clearances, clear floor space requirements, door openings, turning radius, approaches, accessible routes, grab bars, and accessible hardware. All bathrooms in a Type A (accessible) dwelling unit shall be designed as fully accessible. All kitchens in a Type A (accessible) dwelling unit shall be designed as fully accessible.

Dwelling unit or sleeping unit, type B. A dwelling unit or sleeping unit designed and constructed for accessibility in accordance with Section 1002 of ICC A117.1 Accessible and Useable Buildings and Facilities and intended to be consistent with technical requirements for fair housing required by federal law. Dwelling units required to be Type B (adaptable) shall be permitted to be designed and constructed as Type A (accessible) units. A Type B (adaptable) dwelling unit has all required knee and toe clearances, clear floor space requirements, door openings, turning radius, approaches, and accessible routes. Blocking for grab bars in the bathroom is installed. Kitchen cabinets can be installed under the sink. Grab bars and kitchen cabinets are removable for a person with a disability buying or renting the unit. In Type B (adaptable) dwelling units with two or more bathrooms, only one common use bathroom is required to be designed as fully accessible.

Electric vehicle ready space. A designated parking space which is provided with one 50 ampere, 208/240 volt dedicated branch circuit for EVSE servicing Electric Vehicles. The circuit shall terminate in a suitable termination point such as a receptacle or junction box and be located in the close proximity to the proposed location of the Electric Vehicle parking space.

Electric vehicle supply equipment (EVSE). The conductors, including the ungrounded, grounded, and equipment grounding conductors, and the electric vehicle connectors, attachment plugs, and all other fittings, devices, power outlets, or apparatus installed specifically for the purpose of transferring energy between the premises wiring and the electric vehicle.

EVSE installed space. A designated parking space which is provided with EVSE installed.

High rise. All buildings having occupied floors located more than 75 feet above the lowest level of Fire Department vehicle access. This term shall not apply to structures that are not buildings.

Licensed design professional. An individual who is licensed to practice their respective design profession as defined by RSMo Ch. 327.

Licensed design professional in responsible charge. A licensed design professional engaged by the owner to review and coordinate certain aspects of the project as determined by the building official for compatibility with the design of the building or structure, including submittal documents prepared by others, deferred submittal documents, and phased submittal documents.

Project cost. The total cost of a project including professional compensation, land cost, furnishings and equipment, financing, and other charges as well as the construction cost.

Repair. The restoration to good or sound condition any part of an existing building for the purpose of its maintenance. Repair work shall not include the cutting away of any wall, partition, or portion thereof; the removal or cutting away of any structural beam or load-bearing support; or the removal or change of any required means of egress or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, oil, waste, vent or similar piping, electric wiring or mechanical or other work affecting public health or general safety.

Structure, existing. A structure erected prior to the legal date of adoption of the appropriate code or one for which a legal building permit has been issued.

Sun deck. A roof area, balcony, open porch, etc., which is exposed to the sun.

Technically infeasible. An alteration of a building or a facility that has little likelihood of being accomplished because the existing structural conditions require the removal or alteration of a load-bearing member that is an essential part of the structural frame, or because other existing physical or site constraints prohibit modification or addition of elements, spaces, or features which are in full and strict compliance with the minimum requirements for new construction and which are necessary to provide accessibility.

Use group. The classification of occupancy within a building or structure in accordance with the Building Code.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Add Sections 301.5.1 thru 301.5.3 to read as follows:

301.5.1 Resolving Issues of Accessible Design Solutions. Unresolved design issues related to accessibility shall be resolved by the Commissioner on the Disabled. A letter of agreement shall be drafted by the Commissioner on the Disabled to the design professional outlining the accessibility requirements. The building permit shall be issued contingent upon compliance with the letter of agreement.

301.5.2 Waiver Requirements. In order to request a waiver from the requirements of Chapter 11 of the Building Code, a property owner or design professional shall submit a written request to the Commissioner on the Disabled outlining the specific reasons for their request. The Commissioner on the Disabled shall consult with the Building Inspector, Plan Exam Section, or other Building Division staff about the property. A recommendation shall be made by the Commissioner on the Disabled to the Building Commissioner. The Commissioner on the Disabled and Building Commissioner shall agree to grant or deny the request for a waiver. The property owner or design professional is informed in writing of the decision by the Commissioner on the Disabled. This decision is not subject to appeal by the Board of Building Appeals. Permits for the renovated or altered building shall only be issued contingent upon compliance with the letter of agreement.

301.5.3 Waiver Criteria. A waiver of accessibility requirements may be granted if any or all of the following conditions exist:

1. It is technically infeasible to achieve accessibility as determined by the Commissioner on the Disabled.

2. The type of business or work being performed at a property, i.e. physically demanding or requiring a high level of strength and physical mobility, cannot be reasonably performed by a person with a mobility impairment. This is determined by the Commissioner on the Disabled.

3. In an existing multi-floor building with two or more floors, where the functions on the second or other floors above grade are identical to all the functions on the first floor, vertical accessibility can be waived if the first floor is fully accessible. This is determined by the Commissioner on the Disabled on a case by case basis.

Change Section 302.3 to read as follows:

302.3 Additional Codes. Alterations, repairs, additions and changes of occupancy to, or relocation of, existing buildings and structures shall comply with the provisions for alterations, repairs, additions and changes of occupancy or relocation, respectively, in this code and the Energy Conservation Code, Fire Code, Fuel Gas Code, Mechanical Code, Plumbing Code, Property Maintenance Code, Residential Code and NFPA 70. Where provisions of the other codes conflict with provisions of this code, the provisions of this code shall take precedence.

Change Sections 305.4.1 and 305.4.2 to read as follows:

305.4.1 Partial Change in Occupancy. Where a portion of the building is changed to a new occupancy classification, any alterations shall comply with Sections 705 and 806 as applicable.

305.4.2 Complete Change of Occupancy. Where an entire building undergoes a change of occupancy, it shall comply with Section 1012.8.1 and shall have all of the following accessible features:

1. At least one accessible building entrance.

2. At least one accessible route from an accessible building entrance to primary function areas.

3. Signage complying with Section 1110 of the Building Code.

4. Accessible parking, where parking is being provided.

5. At least one accessible passenger loading zone, where loading zones are provided.

6. At least one accessible route connecting accessible parking and accessible passenger loading zones to an accessible entrance.

7. Accessible toilets shall be provided. Where full compliance is not possible, a single-fixture unisex accessible toilet shall be permitted.

Where it is technically infeasible to comply with the new construction standards for any of these requirements for a change of use group or occupancy, the above items shall conform to the requirements to the maximum extent technically feasible. Changes of use group or occupancy that incorporate any alterations or additions shall comply with this section and Sections 705.1 and 705.2 as applicable.

Exceptions:

1. Type B dwelling units required by Section 1107 of the Building Code are not required to be provided in existing buildings and facilities undergoing a change of occupancy in conjunction with less than a level 3 alteration.

2. Waivers as provided for in Sections 705.4 and 705.5.

Change Section 305.8.7 to read as follows:

305.8.7 Type A Dwelling or Sleeping Units. Where 12 or more Group R-2 dwelling or sleeping units are being altered or added, the requirements of Section 1107 of the Building Code for Type A units apply only to the quantity of the spaces being altered or added.

Change Section 305.9 to read as follows:

305.9 Accessibility Requirements. The provisions of Section 1012.8 shall apply to buildings and facilities designated as historic structures that undergo a change of occupancy unless technically infeasible. Where compliance with the requirements for accessible routes, ramps, entrances, or toilet facilities would threaten or destroy the historic significance of the building or facility as determined by the authority having jurisdiction, the alternative requirements of Sections 1204.1.1 through 1204.1.4 for that element shall be permitted.

Exceptions:

1. Type B dwelling or sleeping units required by Section 1107 of the Building Code are not required to be provided in historic buildings.

2. Waivers as provided for in Section 301.5.2 and 301.5.3.

CHAPTER 4 IS AMENDED AS FOLLOWS:

Change Section 408.1 to read as follows:

408.1 Materials. Plumbing materials and supplies shall not be used for repairs that are prohibited in the Plumbing Code.

CHAPTER 7 IS AMENDED AS FOLLOWS:

Change Section 702.6 to read as follows:

702.6 Materials and Methods. New work shall comply with the materials and methods requirements in the Building Code, Energy Conservation Code, Mechanical Code and Plumbing Code, as applicable, that specify material standards, detail of installment and connection, joints, penetrations, and continuity of any element, component, or system in the building.

Add Sections 704.2 and 704.3 to read as follows:

704.2 Alternate to Second Stair. An existing building shall be allowed to have a single stair provided it complies with all of the following conditions:

1. The entire building shall be fully sprinklered, all rooms and spaces with no exceptions.

2. Floor area shall be 10,000 square feet or less per floor.

3. The window sill height on the top floor shall be 100 feet or less from the lowest level of Fire Department vehicle access.

4. Standby power, light, and emergency systems are required in all buildings having occupied floors located more than 75 feet above the lowest level of Fire Department vehicle access.

5. Public corridors shall have a two hour fire rated construction in a straight line with no turns. All tenant separation wall, partitions, and floor/ceiling assemblies shall be a minimum of two-hour fire-rated construction.

6. The entire building shall have a complete fire alarm system.

7. Groups above the fifth floor shall be limited to B, M, R, S-1 and S-2. H Group occupancies shall not be allowed in the building.

8. Atriums and communicating stairs are not allowed in the building.

9. Stair enclosure shall be a minimum two hour fire rated construction with mechanical pressurization and automatic fire detection systems powered by an approved standby power system and a standpipe and hose connections at each floor. Stair shall be constructed of steel, steel pan, concrete or acceptable noncombustible construction.

10. All public corridors shall have emergency and exit lighting.

11. Stair shall discharge directly to the exterior or be connected to an exterior exit by a two-hour fire-rated exit access corridor enclosure.

12. The basement, if used for any purpose other than mechanical equipment or storage, must have two means of egress.

704.3 Dual Exits Over Two Stories. All habitable buildings over two stories in height containing one or more dwelling units above the second floor shall provide two separate exits from each floor above the second floor, accessible to each dwelling unit on said floor. All required exit facilities shall lead to a public thoroughfare either directly or through a court or yard, and passage to such exits shall not lead through any other dwelling unit. Dual means of exit shall consist of two interior stairs discharging directly or through a rated exit enclosure to the outside, or one interior and one exterior stair or existing fire escape accessible to all dwelling units on each floor above the second floor and discharging directly or through a court or yard to a public thoroughfare.

Exceptions:

1. Buildings permitted to have only one means of egress under the Building Code.

2. Single-Family Dwelling Units of Use Group R-3, two and one-half or three stories in height, of Type III (exterior masonry) construction, shall be exempt from the requirements for two exits.

3. A single exit shall be permitted from townhouse dwelling units located on the second and third floors, in buildings of Type III (exterior masonry) construction, provided that the exit is from the second floor, with a minimum of forty percent of the habitable space located on the second floor, and all of the following requirements are met:

A. Horizontal and vertical fire separation assemblies based on the Use Group classification between the first and second floor, as determined under the Building Code, are installed. A horizontal fire separation is not required between a first floor commercial space and dwelling units above provided that an AC-powered battery back-up interconnected smoke detection system is installed in the commercial space and basement with remote alarms in all dwelling units above or in the common stair and hall if audible within all dwelling units.

B. The building is limited to a maximum of six dwelling units and three stories in height.

C. An AC-powered battery back-up interconnected smoke detection system is installed for each dwelling unit throughout the building including the basement. The location of the smoke detectors shall be sufficient to detect smoke in any habitable room or basement.

CHAPTER 8 IS AMENDED AS FOLLOWS:

Change Section 803.2.2 to read as follows:

803.2.2 Groups A, B, E, F-1, H, I, M, R-1, R-2, R-4, S-1, and S-2. In buildings with occupancies in Groups A, B, E, F-1, H, I, M, R-1, R-2, R-4, S-1 and S-2, work areas that have exits or corridors shared by more than one tenant or that have exits or corridors serving an occupant load greater than 30 shall be provided with automatic sprinkler protection where all of the following conditions occur:

1. The work area is required to be provided with automatic sprinkler protection in accordance with the Building Code as applicable to new construction; and

2. The work area exceeds 50 percent of the floor area.

Exceptions:

1. If the building does not have sufficient municipal water supply for design of a fire sprinkler system available to the floor without installation of a new fire pump, work areas shall be protected by an automatic smoke detection system throughout all occupiable spaces other than sleeping units or individual dwelling units that activates the occupant notification system in accordance with Sections 907.4, 907.5, and 907.6 of the Building Code.

2. Work areas in existing Group R occupancies three stories or less in height when the building is equipped throughout with a hard-wired smoke detection system.

Add Section 805.1.1 to read as follows:

805.1.1 Entrance. A building, facility, or element that is altered shall comply with Section 704. An accessible entrance shall be provided when entrance steps are being replaced in buildings required to be accessible. Vertical platform lifts can be used to achieve vertical accessibility. In an existing multi-floor building with two or more floors above grade where the functions on the second or other floors above grade are identical to all the functions on the first floor and is the same tenant, vertical accessibility can be waived by the Commissioner on the Disabled on a case by case basis if the first floor is totally accessible.

In Level 2 alterations that involve a change of use or occupancy to Use Group R-2 and containing more

than twenty dwelling units, at least two percent but not less than one of the dwelling units shall be Type A dwelling units.

Change Sections 807, 808 and 809 to read as follows:

SECTION 809 ELECTRICAL

809.1 Electrical. In buildings undergoing Level 2 Alterations, the electrical system shall meet NFPA 70.

SECTION 810 MECHANICAL

810.1 Mechanical Systems. In buildings undergoing Level 2 Alterations, all mechanical systems shall meet the Mechanical Code.

SECTION 811 PLUMBING

811.1 Plumbing Systems. In buildings undergoing Level 2 Alterations, the plumbing system shall meet the Plumbing Code.

CHAPTER 10 IS AMENDED AS FOLLOWS:

Change Sections 1009.1, 1009.2, 1009.3 and 1009.5 as follows:

1009.1 Increased Demand. Where the occupancy of an existing building or part of an existing building is changed such that the new occupancy is subject to increased or different fixture requirements or to increased water supply requirements in accordance with the Plumbing Code, the new occupancy shall comply with the intent of the respective Plumbing Code provisions.

1009.2 Food-Handling Occupancies. If the new occupancy is a food-handling establishment, all existing sanitary waste lines above the food or drink preparation or storage areas shall be panned or otherwise protected to prevent leaking pipes or condensation on pipes from contaminating food or drink. New drainage lines shall not be installed above such areas and shall be protected in accordance with the Plumbing Code.

1009.3 Interceptor Required. If the new occupancy will produce grease or oil-laden wastes, interceptors shall be provided as required in the Plumbing Code.

1009.5 Group I-2. If the occupancy group is changed to Group 1-2, the plumbing system shall comply with the applicable requirements of the Plumbing Code.

CHAPTER 12 IS AMENDED AS FOLLOWS:

Add Sections 1201.6 and 1201.6.1 to read as follows:

1201.6 Cultural Resources Office Permit Requirements. When the ordinances of the Cultural Resources Office (CRO) require a permit for items for which this code does not require a permit, applications shall be permitted to be taken by the Building Division and processed solely to the Cultural Resources Office. Both the Building Commissioner and the Cultural Resources Director are authorized to place stop work orders. Any appeals or court actions resulting from such citations, applications, or permits shall have technical and aesthetic testimony from the staff of the Cultural Resources Office.

1201.6.1 Cultural Resources Office Denial. Unless overruled by the Building Commissioner as a result of an emergency situation or the Planning and Urban Design Commission, a denial from the Cultural Resources Office shall be the final denial; no further notice from the building official shall be required to any person.

CHAPTER 15 IS AMENDED AS FOLLOWS:

Change Section 1501.7 to read as follows:

1501.7 Facilities Required. Sanitary facilities shall be provided during construction or demolition activities in accordance with the Plumbing Code.

CHAPTER 16 IS AMENDED AS FOLLOWS:

Modify Chapter 16 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

302.3, 408.1, 702.6, 809.1, 1009.1, 1009.2, 1009.3, 1009.5, 1501.7

SECTION 908 ELECTRIC VEHICLE CHARGING STATIONS

908.1 Electric vehicle charging stations. Electric vehicle charging stations shall be installed in accordance with NFPA 70. Electric vehicle charging system equipment shall be listed and labelled in accordance with UL 2202. Electric vehicle supply equipment shall be listed and labelled in accordance with UL 2594. Accessibility to electric vehicle charging stations shall be provided in accordance with Section 305. Where an EV Ready or EVSE Installed parking space is required, at least one

EV Ready or EV Installed parking space shall be installed adjacent to an ADA accessible parking space, when an ADA accessible parking space is also required.

Where the calculation of percent served results in a fractional parking space, it shall be rounded up to the next whole number if the fraction is .5 (½) of a parking space or greater. This requirement does not apply to buildings without a designated parking space, nor does this requirement apply to parking spaces located in the public right of way.

For the following Use Groups Level 3 alterations shall require installation of EV Ready Spaces and Electric Vehicle Supply Equipment (EVSE) in accordance with Tables 908.1.1 through Table 908.1.5:

TABLE 908.1.1 NON-RESIDENTIAL USE GROUPS WITH EV READY AND EVSE INSTALLED REQUIREMENT PER TABLE 908.1.2

Use Group	Applicability
A1	All
A2	Casinos uses only, excluding all other uses within A2
A3	Excluding places of religious worship
A4	All
A5	All
B	All
E	Excluding daycare uses as defined by Section 305.2
I2	Hospital uses only as defined by Section 308.3.1.2, Condition 2
M	All
S2	Parking garages, open or enclosed only, excluding all other uses within S-2

TABLE 908.1.2 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR NON-RESIDENTIAL USE GROUPS

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
10—30 spaces	1 space	0 spaces
31—49 spaces	2 spaces	1 space
50 spaces and greater	5% of total parking spaces	2% of total parking spaces

TABLE 908.1.3 RESIDENTIAL USE GROUPS WITH EV READY AND EVSE INSTALLED REQUIREMENT PER TABLES 908.1.4 AND 908.1.5

Use Group	Applicability
R1	All
R2	All

TABLE 908.1.4 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR RESIDENTIAL USE GROUPS, JANUARY 1, 2022 THROUGH DECEMBER 30, 2024.

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
5—20 spaces	1 space	0 spaces
21—49 spaces	2 spaces	1 space
50 spaces and greater	5% of total parking spaces	2% of total parking spaces

TABLE 908.1.5 EV READY AND EVSE INSTALLED SPACE REQUIREMENTS FOR RESIDENTIAL USE GROUPS, JANUARY 1, 2025 AND AFTER

Total Number of Parking Spaces	Minimum Number of EV Ready Spaces	Minimum Number of EVSE Installed Spaces
5—20 spaces	1 spaces	0 spaces
21—49 spaces	2 spaces	1 space
50 spaces and greater	10% of total parking spaces	2% of total parking spaces

(Ord. No. 71990, § 3, 2-25-2025; Ord. No. 71292, §§ 1—3, 2-11-2021; Ord. No. 70797, § 3, 7-6-2018.)

25.20.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, shall be subject to, a fine as set forth in Section 25.33.040. Each day that a violation continues shall constitute a separate and distinct offense.

(Ord. No. 71990, § 2, 2-25-2025; Ord. No. 70797, § 4, 7-6-2018.)

Chapter 25.32

INTERNATIONAL PROPERTY MAINTENANCE

Editor's Note:

Ord. No. 70798, adopted July 6, 2018, adopting the 2018 International Property Maintenance Code with amendments, repealed and replaced Ordinance No. 68791. Ord. No. 68791, adopted Nov. 8, 2010, repealed Ch. 25.32 and enacted a new chapter. The former Ch. 25.32, §§ 25.32.010—25.32.500, pertained to similar subject matter and derived from Ord. No. 66787, §§ 2—4, 2005.

Prior ordinance history: Ords. 57023, 60828, 63695, 64417, 65023 and 65929

Sections:

25.32.010 Adoption.

25.32.020 Amendments.

25.32.030 Penalty.

25.32.010 Adoption.

The 2018 International Property Maintenance Code as published by the International Code Council, Inc., one copy of which is on file in the office of the Register of the City of Saint Louis, being marked and desig-

nated as the International Property Maintenance Code, is hereby adopted as the Property Maintenance Code of the City of Saint Louis, in the State of Missouri, pursuant to this chapter and in conformity with RSMo 71.943 for the control of buildings and structures as herein provided; and that each and all of the regulations, provisions, penalties, conditions, and terms of said Property Maintenance Code are hereby referred to, adopted, and made a part hereto as if fully set out in this chapter with the amendments prescribed in Section 25.32.020. If differences occur between a provision modified by this chapter and a provision adopted without modifications, then the modified provision shall control. (Ord. No. 70798, § 2, 7-6-2018.)

RSMo:

RSMo 67.280 (2016) Adoption of technical codes by reference

25.32.020 Amendments.

The 2018 International Property Maintenance Code is amended and changed in the following respects:

CHAPTER 1 IS AMENDED AS FOLLOWS:

Delete Chapter 1 as published in its entirety.

Add a new Chapter 1 to read as follows:

CHAPTER 1

SCOPE AND ADMINISTRATION

SECTION 101 GENERAL

101.1 Title. These regulations shall be known as the Property Maintenance Code of the City of Saint Louis, Missouri, hereinafter referred to as "this code."

101.2 Scope. The provisions of this code shall apply to all existing residential and nonresidential structures and all existing premises and shall constitute minimum requirements and standards for premises, structures, equipment, and facilities for light, ventilation, space, heating, sanitation, protection from the elements, life safety, safety from fire and other hazards, and for safe and sanitary maintenance; the responsibility of owners, operators, and occupants; the occupancy of existing structures and premises, and for administration, enforcement, and penalties.

101.3 Intent. This code shall be construed to secure its expressed intent, which is to ensure public health, safety, and general welfare insofar as they are affected by the continued occupancy and maintenance of structures and premises. Existing structures and premises that do not comply with these provisions shall be altered or repaired to provide a minimum level of health and safety as required herein.

101.4 Severability. If a section, subsection, sentence, clause or phrase of this code is, for any reason, held to be unconstitutional, such decision shall not affect the validity of the remaining portion of this code.

SECTION 102 APPLICABILITY

102.1 General. Where in any specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

102.2 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law.

102.3 Application of References. References to chapter or section numbers or to provisions not specifically identified by number shall be construed to refer to such chapter, section, or provision of this code.

102.4 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference. Where differences occur between provisions of this code and referenced standards, the provisions of this code shall apply. Referenced standards shall be permitted to be updated by rule making authority of the building official.

102.5 Partial Invalidity. In the event any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.6 Maintenance. Equipment, systems, devices, and safeguards required by this code or a previous regulation or code under which the structure or premises was constructed, altered, or repaired shall be maintained in good working order. The requirements of this code are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Except as otherwise specified herein, the owner or the owner's designated agent shall be responsible for the maintenance of buildings, structures, and premises.

102.7 Application of Other Codes. Repairs, additions, or alterations to a structure or changes of occupancy shall be done in accordance with the procedures

and provisions of the Building Code, Existing Building Code, Residential Code for One- and Two-family Dwellings, Plumbing Code, Mechanical Code, Fuel Gas Code, and Electrical Code. Nothing in this code shall be construed to cancel, modify, or set aside any provision of the zoning code.

102.8 Existing Remedies. The provisions in this code shall not be construed to abolish or impair existing remedies of the City of Saint Louis or its officers or agencies relating to the removal or demolition of any structure which is dangerous, unsafe, and unsanitary.

102.9 Other Regulations. When the provisions specified herein for public safety, health, and welfare are in conflict with other regulations, the most rigid requirements of either the Building Code or other regulations shall apply whenever they conflict. However, the building official shall not be the enforcement officer for such other ordinances or regulations unless specified in said ordinances or regulations.

102.10 Requirements Not Covered by Code. Requirements necessary for the strength, stability or proper operation of an existing structure or equipment, or for the public safety, health, and general welfare not specifically covered by this code shall be determined by the building official.

102.11 Historic Buildings. The provisions of this code shall not be mandatory for existing buildings or structures designated by the state or local jurisdiction as historic buildings when such buildings or structures are judged by the building official to be safe and in the public interest of health, safety, and welfare.

SECTION 103 DIVISION OF BUILDING AND INSPECTION

103.1 Enforcement Agency. The enforcement agency shall be the Division of Building and Inspection. The Division shall consist of the following sections to include, but not be limited to: Administration Section, Building Inspection Section, Central File Section, Court Section, Electrical Inspection Section, Mechanical Inspection Section, Permit Section, Plan Exam Section, Plumbing Inspection Section, and Zoning Section.

103.2 Building Commissioner. The head of the Division of Building and Inspection shall be known as the Building Commissioner, in accordance with Section 15, Article 13 of the Charter of the City of Saint Louis.

103.2.1 Appointment; Qualifications. The Building Commissioner, also herein referred to as the building official, shall be a Missouri licensed professional architect or a Missouri licensed professional engineer, or shall have a bachelors degree in an appropriately related field with Certified Building Code Official status, or shall have a masters degree in an appropriately related field and five years' experience in building code enforcement at a senior management level. The Building Commissioner shall be appointed by the Director of Public Safety and shall possess any one of the above necessary qualifications.

103.3 Organization. The building official shall appoint such numbers of architects, engineers, technical assistants, inspectors, and other employees such as clerks, typists, and cashiers as shall be necessary for the administration of the codes governed by this chapter and as authorized by the building official in conformance with Civil Service qualifications and regulations. The building official shall be permitted to delegate appropriate subordinates to act in the exercise of the duties of this code and they also shall be designated as building officials. The building official is authorized to designate employees as needed who shall exercise all the powers of the building official during the temporary absence or disability of the building official.

103.4 Restriction of Employees. An official or employee connected with the Division of Building and Inspection, except one whose only connection is that of a member of the Board of Building Appeals established under the provisions of Section 112, shall not be engaged in directly or indirectly connected with the furnishing of labor, materials, or appliances for the construction, alteration, or maintenance of a building or the preparation of construction documents thereof unless that person is the owner of the building or a first degree relative of the owner of the building; nor shall such officer or employee engage in any work which conflicts with official duties or with the interests of the Division of Building and Inspection.

Further, no Building Division employee shall be employed by or serve as an employee of any other division within the City service unless a formal request is made by the Building Commissioner to and approved by the appointing authority of that Division.

103.5 Relief from Personal Responsibility. The building official or employee charged with the enforcement of this code while acting for the jurisdiction shall not thereby be rendered liable personally and is hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act

required or permitted in the discharge of official duties. Any suit instituted against any employee because of an act performed by that person in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordinates shall not be liable for costs or judgment in any action, suit, or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection acting in good faith and without malice shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

103.6 Official Records. An official record shall be kept of all business and activities of the department specified in the provisions of this code and all such records shall be open to public inspection at all appropriate times.

A reasonable charge shall be established for making copies of documents. If staff time is required to assemble requested data, an estimate shall be made of personnel charges including fringe benefits and a signed agreement made prior to undertaking such projects. The Division of Building and Inspection is not obligated to assemble data into formats that it does not use or need in the ordinary prosecution of its work.

Further, whenever any person, firm, or corporation requests a comprehensive historical investigation of the Division of Building and Inspection records relating to building or occupancy permits, an application fee of $25.00 shall be charged as specified in the Building Code.

SECTION 104 DUTIES AND POWERS OF THE BUILDING OFFICIAL

104.1 General. The building official is hereby authorized and directed to enforce the provisions of this code. The building official shall have the authority to render interpretations of this code and adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall be in conformance with the intent and purpose of this code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

104.1.1 Rule making authority. The Building Commissioner shall have authority as necessary in the interest of public health, safety, and general welfare to adopt and promulgate rules and regulations to interpret and implement the provisions of this code, to secure the intent thereof, and to designate requirements applicable because of local climatic or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this code or violating accepted engineering practice involving public safety.

104.2 Inspections. The building official shall make all of the required inspections, or the building official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority. The owner shall provide such special inspections as are required by the building official.

104.3 Right of Entry. Where it is necessary to make an inspection to enforce the provisions of this code or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous, or hazardous, the building official is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this code, provided that if such structure be occupied, that credentials be presented to the occupant and entry requested. If such structure or premises be unoccupied, the building official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall recourse to the remedies provided by law to secure entry.

104.4 Identification. The building official shall carry proper identification when inspecting buildings, structures, or premises in the performance of duties under this code.

104.5 Notices and Orders. The building official shall issue all necessary notices or orders to ensure compliance with the code.

104.6 Nuisance. The building official is authorized to enter and inspect every room, building, structure, or portion thereof which constitutes a nuisance as defined herein within forty-eight hours of being notified by the Police Department that such condition exists. The Police Department shall notify the building official of a nuisance property within twenty-four hours of identifying such property. If the owner or occupant of said building or structure refuses to permit an inspection, the building official shall be permitted to immediately condemn for occupancy the building, structure, or portion thereof, and issue an order to vacate if, under the totality of the circumstances, the building official has reasonable cause to believe a nuisance as defined herein exists. In the event that any person refuses to leave, interferes with the evacuation of other occupants, or continues any operation within said building, structure, or portion thereof after having been given an evacuation order by the building official, it shall be the duty of the Police Department to immediately remove such person from said building or structure and prevent anyone from reentering the building or structure until such time as the Police Department has been notified by the building official that the order to condemn for occupancy has been rescinded. For purposes of this section a nuisance shall be defined as any violation of this chapter which if not promptly corrected will constitute a fire hazard or a threat to the life, health, or safety of the occupants of the building, structure, or portion thereof in which the violations occur.

104.8 Liability. The building official, member of the Board of Building Appeals, or employee charged with the enforcement of this code, while acting for the City of Saint Louis in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered civilly or criminally liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties.

104.8.1 Legal Defense. Any suit or criminal complaint instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by the City of Saint Louis City Counselor's Office until the final termination of the proceedings. The building official or any subordinates shall not be liable for cost or judgment in any action, suit or proceeding that is instituted in pursuance of the provisions of this code; and any employee of the Division of Building and Inspection, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

The above protection shall also extend to former employees for work performed during their period of employment with the City of Saint Louis.

SECTION 105 APPROVAL

105.1 Modifications. Wherever there are practical difficulties involved in carrying out provisions of this code, the building official shall have the authority to grant modifications for individual cases upon application of the owner or owner's representative provided the building official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the Department of Public Safety.

105.2 Alternative Materials, Design, and Methods of Construction and Equipment. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code provided any such alternative has been approved. An alternative material, design, or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code and that the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety.

105.3 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the building official shall have the authority to

require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for the retention of public records.

105.3.1 Research and Investigations. The building official shall require that sufficient technical data be submitted to substantiate the proposed use of any material or assembly, and if it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the building official shall approve its use subject to the requirements of this code. The costs of all tests, reports and investigations required under these provisions shall be paid by the applicant or owner.

105.4 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless they have been reconditioned, tested, and placed in good and proper working condition and approved by the building official.

105.5 Approved Materials and Equipment. Materials, equipment, and devices approved by the building official shall be constructed and installed in accordance with such approval.

105.6 Research Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

SECTION 106 VIOLATIONS

106.1 Unlawful Acts. It shall be unlawful for any person, firm, or corporation to grade for, excavate for, erect, construct, alter, extend, repair, move, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code or cause same to be done in conflict with or in violation of the provisions of this code or any decision or order of the Board of Building Appeals or the building official.

106.2 Notice of Violation. The building official is authorized to serve a notice of violation or order on the owner as shown in the records of the City of Saint Louis Assessor's Office or person responsible for the grading, excavating, erection, construction, alteration, extension, repair, moving, removal, demolition, use, or occupancy of a building, structure, or premises in violation of the provisions of this code, or in violation of a detail statement or construction documents approved hereunder, or in violation of a permit or certificate issued under the provisions of this code. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. Such notice shall be permitted to be served by the United States mail. Posting of the premises shall also constitute notice. It shall be a violation of this code for any person to remove any such notice lawfully posted pursuant to this code unless otherwise ordered by the building official.

106.2.1 Investigation of Records. Upon the receipt of a written request from the owner of the property, the real estate agent for the property, or the attorney, architect, or engineer representing the owner of the property, the permit section supervisor shall ask the various building division sections for copies of any existing violation letters concerning the property. If the request is not on the owner's letterhead, a notarized authorization from the owner must be submitted.

The response letter written by the permit section supervisor shall list any known violations and must contain the following statement: "This letter does not certify that there are no actual existing violations of the ordinances for which the Division of Building and Inspection is responsible. To determine if there are any violations of any ordinances, an application for an occupancy permit must be filed in accordance with Section 111.5 of the Building Code and the subsequent inspections completed. This letter does certify there are no existing letters of violation on record other than those attached herein. There will be a $25.00 fee charged for this service. Five working days will be allowed to respond to this request."

106.3 Prosecution of Violation. If the notice of violation is not complied with promptly, the building official is authorized to request the legal counsel of the City of Saint Louis to institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation or to require the removal or termination of the unlawful occupancy of the building, structure, or premises in violation of the provisions of this code or of the order or direction made pursuant thereto.

106.4 Violation Penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs,

alters, or repairs a building or structure in violation of the approved construction documents, of a directive of the building official, or of a permit or certificate issued under the provisions of this code shall be subject to penalties as prescribed in Section 25.32.030.

106.5 Abatement of Violation. The imposition of penalties as set forth in Section 25.32.030 shall not preclude the legal officer of the City of Saint Louis from instituting appropriate action to prevent unlawful construction; to restrain, correct, or abate a violation; to prevent illegal occupancy of a building, structure, or premises; or to stop an illegal act, conduct business, or use of a building or structure on or about any premises.

SECTION 107 NOTICES AND ORDERS

107.1 Notice to Owner or to Person or Persons Responsible. Whenever the building official determines that there has been a violation of this code or has grounds to believe that a violation has occurred, notice shall be given to the owner or the person or persons responsible therefore in the manner prescribed in Sections 107.2 and 107.3.

107.2 Form. Such notice prescribed in Section 107.1 shall:

1. Be in writing;
2. Include a description of the real estate sufficient for identification;
3. Include a statement of the violation or violations and why the notice is being issued;
4. Include a correction order allowing a reasonable time to make the repairs and improvements required to bring the dwelling unit or structure into compliance with the provisions of this code; and
5. Inform the property owner of the right to appeal.

107.3 Method of Service. The notice to the owner of the building, structure, or premises found to be in violation of this code by the building official shall be directed to the owner or owners of such building, structure, or premises as recorded most recently in the City of Saint Louis Assessor's Office. The notice shall be served in one of the following ways:

1. Delivered personally to owner or owners; or
2. By posting a copy of said notice upon the building, structure, or premise; or
3. By mailing a copy of said notice by regular mail, postage prepaid, direct to the owner or owner's place of business or the address currently recorded in the Assessor's Office of the City of Saint Louis; or
4. By publication in a newspaper of general circulation in the City of Saint Louis.

107.4 Unauthorized Tampering. Signs, tags, or seals posted or affixed by the building official shall not be mutilated, destroyed, tampered with, or removed without authorization from the building official.

107.5 Penalties. Penalties for noncompliance with orders and notices shall be as set forth in Section 25.32.030.

107.6 Transfer of Ownership. It shall be unlawful for the owner of any dwelling unit or structure who has received a compliance order or upon whom a notice of violation has been served to sell, transfer, mortgage, lease, or otherwise dispose of to another until the provisions of the compliance order or notice of violation have been complied with or until such owner shall first furnish the grantee, transferee, mortgagee, or lessee a true copy of any compliance order or notice of violation issued by the building official and shall furnish to the building official a signed and notarized statement from the grantee, transferee, mortgagee, or lessee acknowledging the receipt of such compliance order or notice of violation and fully accepting the responsibility without condition for making the corrections or repairs required by such compliance order or notice of violation.

107.7 Continuation of Violation. Any notice sent pursuant to this code or any other ordinance of the City of Saint Louis concerning the condition of a property or structure, including building, health, safety, or environmental, shall run with the land and no further notices are required to be sent to any new owner except any violation notice or condemnation of structure or property shall be in full force and effect upon transfer of property and the City is not required to reissue the notice or re-condemn the property unless twelve months have elapsed since the last notice.

SECTION 108 UNSAFE BUILDINGS, STRUCTURES AND EQUIPMENT

108.1 Conditions. Buildings, structures, or equipment that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress, facilities, inadequate light and ventilation, or a fire hazard; are otherwise dangerous to human life or the public welfare; or which involve illegal or improper occupancy or inadequate maintenance shall be deemed in unsafe condition. Unsafe buildings or structures shall be taken down and removed or made safe as the

building official deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.

108.2 Closing of Vacant Structures. If the structure is vacant and unfit for human habitation and occupancy and is not in danger of structural collapse, the building official is authorized to post a placard of condemnation on the premises and order the structure closed so as not to be an attractive nuisance. Upon failure of the owner to close up the premises within the time specified in the order, the building official shall cause the premises to be closed and secured through any available public agency or by contract or arrangement by private persons and the cost thereof shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate and may be collected by any other legal resource.

108.2.1 Authority to Disconnect Service Utilities. The building official shall have the authority to authorize disconnection of utility service to the building, structure, or system regulated by this code and the referenced codes and standards set forth in Section 102.7 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without approval. The building official shall notify the serving utility and, whenever possible, the owner and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection the owner or occupant of the building, structure, or service system shall be notified in writing as soon as practical thereafter.

108.3 Notice. If an unsafe condition is found, the building official shall serve on the owner, agent, or person in control of the structure a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition or that requires the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare immediately to the building official acceptance or rejection of the terms of the order.

108.3.1 Prohibited Occupancy. Any occupied structure condemned and placarded by the building official shall be vacated as ordered by the building official. Any person who shall occupy a placarded premises or shall operate placarded equipment and any owner or any person responsible for the premises who shall let anyone occupy a placarded premises or operate placarded equipment shall be liable for the penalties provided by this code.

108.4 Method of Service. Such notice shall be deemed properly served if a copy thereof is (a) delivered to the owner personally; (b) sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested; or (c) delivered in any other manner as prescribed by local law. If the certified or registered letter is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

108.5 Restoration. The structure or equipment determined to be unsafe by the building official is permitted to be restored to a safe condition. To the extent that repairs, alterations or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of Section 105.2.2 of the Building Code and Section 105.2.2 of the Existing Building Code.

108.6 Abatement Methods. The owner, operator, or occupant of a building, premises, or equipment deemed unsafe by the code official shall abate or cause to be abated or corrected such unsafe condition either by repair, rehabilitation, demolition, or other approved corrective action.

108.6.1 Securing Structures. The building official shall be permitted to order the owner of a vacant or partially vacant building or structure that is open and unsecured, in whole or in part, to secure all openings of said building or structure in accordance with Section 119 of the Building Code.

If the owner or owners fail to comply with the order of the building official within ten calendar days and in such a manner as provided by code, then such owner or owners shall have violated this code and the building official may forthwith, subject to funds availability, proceed to undertake and complete the work specified in that order. Billing, liens, and cost recovery shall be in accord with Section 119.5 of the Building Code.

108.7 Declaration of Emergency Securing. The building official may declare an emergency to exist which shall waive the required ten-calendar-day owner-

compliance period and allow the building official to immediately cause the removal or the securing of open hazardous structures by placing a notice on the structure and, after a 24 hour period, causing the securing. Lien and recovery of costs shall be in accord with Section 199.5 of the Building Code. In extreme imminent public safety conditions, the 24-hour period need not be observed.

108.8 Record. The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

SECTION 109 EMERGENCY MEASURES

109.1 Procedure. When, in the opinion of the building official, a building, structure, or premises poses an immediate or imminent danger to the public health, safety, or welfare, the building official shall order the immediate evacuation and securing of said building, structure, or premises and shall be permitted to order all utilities to be disconnected without sending a notice. Each principal entrance shall be posted with a notice which reads as follows:

DANGER THIS PREMISES IS UNSAFE AND HAS BEEN CONDEMNED

ALL PERSONS ARE WARNED TO KEEP AWAY

Any person who refuses to leave, interferes with the evacuation of other occupants, occupies, or continues any operation after the property has been posted pursuant to this section, except such persons who are directed to perform work to remove a violation or unsafe condition, shall be deemed in violation of this section and it shall be the duty of the Police Department to immediately remove such persons from said building, structure, or premises and prevent anyone, unless approved by the building official, from reentering the building, structure, or premises until such time that the Police Department shall have been notified that the same is in a safe condition. The building official assumes no responsibility for persons entering upon said property and said persons proceed at their own risk and assume all liability.

109.2 Temporary Safeguards. When, in the opinion of the building official, there is actual and immediate danger of collapse or failure of a building or structure or any part thereof which would endanger life, the building official shall be permitted to cause the necessary work to be done to render such building or structure or part thereof temporarily safe whether or not the legal procedure herein described has been instituted.

109.3 Closure. When necessary for public safety, the building official shall temporarily close sidewalks, streets, buildings, structures, and places adjacent to a building, structure, or premises deemed unsafe under the provisions of Section 108 and prohibit the same from being used.

109.3.1 Catchment Enclosures. If, in the opinion of the building official, it is determined that there exists an imminent structural hazard, catchment enclosures shall be erected protecting adjoining property and the public right-of-way. The cost for such catchment enclosures shall be the responsibility of the owner of record of the hazard and the recovery of said costs will be as described in Section 119.5 of the Building Code.

109.4 Emergency Repairs; Remedies. For the purpose of this section, the building official shall be permitted to employ the necessary labor and materials to perform the required work as expeditiously as possible. Further, when it is found that potable water is running inside a vacant building or structure and the owner or the owner's representative cannot be contacted and where severe structural or other damage can thus occur to adjacent properties, the Building Commissioner or the Health Commissioner shall be permitted to order the Water Division to cease the problem flow by whatever means the Water Division finds necessary. The Water Division shall comply with any order issued pursuant to this section.

109.5 Cost of Emergency Repairs or Demolition. Costs incurred in the performance of emergency work shall be paid from the Treasury of the City of Saint Louis on certification of the building official. The legal counsel of the City of Saint Louis shall institute appropriate action against the owners of the premises where the unsafe building or structure is or was located for the recovery of such costs plus a ten percent administrative fee. If such cost is not collected, a lien shall be requested to be placed upon the property by the Comptroller. The costs shall also be certified by the Collector of Revenue or other official collecting real estate taxes who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owners and shall also be a lien on the property until paid.

109.6 Emergency Demolition or Removal. If, in the opinion of the building official, a building, structure, tree, or premises, in whole or in part, poses an immediate and imminent danger to the public health, safety, or welfare by virtue of its condition or conditions in violation of this code, the building official shall be permitted to cause the immediate removal of said building, structure, or tree without the notice set forth elsewhere in this code. Further, the building official shall have the authority to award a sole source contract for demolition of said dangerous building, structure, or tree.

109.7 Demolition of Party Walls; Responsibility. When a building or structure on one side of a party wall is demolished, the demolition contractor is required to mortar in the floor or roof joist pockets, and is also responsible for installing missing portions of the party wall which were not originally built. The demolition contractor shall remove any attachments to the building or structure (plaster, mortar, steps, paneling, etc.). The adjacent wall shall have an approved roofing material applied to create a coping for the wall. The demolition contractor shall also be responsible for applying an exterior sprayed-on sand and tinted cement coating or for tuckpointing; these are not the responsibility of the owner of the remaining building who relies on structural support from the party wall.

SECTION 110 RIGHT TO APPEAL

110.1 Appeals. Any person aggrieved by a decision of the building official may appeal said decision to the Board of Building Appeals as set out in Section 113 of the Building Code.

110.2 Appeals to Stay Proceedings; Exceptions. Appeals shall stay all proceedings in furtherance of the action appealed from unless the building official or fire official, whichever shall be the case, certifies to the Board of Building Appeals after the notice of appeal has been filed that by reason of the facts stated in the certificate, a stay would, in their opinion, cause imminent peril to life or property. Proceedings shall not be stayed other than by restraining order.

SECTION 111 STOP WORK ORDER

111.1 Authority. Whenever the building official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the building official is authorized to issue a stop work order.

111.2 Issuance. The stop work order shall be in writing and shall be given to the owner of the property involved, to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work will be permitted to resume.

111.3 Unlawful Continuance. Any person who shall continue any work in or about the building, structure, or premises after having been served with a stop work order, except such work as they are directed to perform to remove a violation or unsafe condition shall, upon conviction thereof, be subject to the penalties as set forth in Section 25.32.030. Each day that a violation continues shall constitute a separate and distinct offense.

SECTION 112 WORKMANSHIP

112.1 General. All work shall be conducted, installed, and completed in a neat, workmanlike, and acceptable manner so as to secure the results intended by this code.

CHAPTER 2 IS AMENDED AS FOLLOWS:

Modify Section 202 General Definitions by the addition or changing of definitions to read as follows:

Building official or *code official.* The Building Commissioner of the City of Saint Louis or any duly authorized representative.

Common exit. An exit that serves two or more dwelling units.

Owner. Any person, agent, operator, management firm, collector of rent, firm, or corporation having a legal or equitable interest in the property; or recorded in the official records of the Assessor's Office of the City of Saint Louis as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

CHAPTER 3 IS AMENDED AS FOLLOWS:

Change Section 302.3 through 302.8 to read as follows:

302.3 Private Property Areas. All sidewalks, steps, driveways, parking spaces and similar paved areas on private property shall be kept in a proper state of repair, free of all snow, ice, mud, overhanging trees and shrubs which obstruct walkways, and other debris and shall be maintained free of hazardous conditions. If any side-

walk or driveway or portion thereof on private property by virtue of its state of repair shall constitute a danger to public health and safety, the sidewalk or driveway or portion thereof shall be replaced. Steps shall comply with the requirements for exterior stairs.

Whenever off-street parking is permitted in any dwelling district behind the building line, the new parking area, including the driveway, shall be paved with concrete, bituminous material, or an equivalent surface approved by the building official. Any new off-street parking and loading areas, including a driveway behind the building line, must be constructed to conform with the Building Code. Any such off-street parking areas and driveways for said parking areas existing at the date of the passage of this chapter shall be of a surface approved by the building official. If any existing off-street parking areas are enlarged or changed in any manner that results in the total parking area including the driveway to be 1,000 square feet or more, then the entire parking area and driveway shall be paved with concrete, bituminous material, or an equivalent surface approved by the building official.

302.4 Weeds. All premises and exterior property shall be maintained free from weeds or plant growth in excess of eight inches. All noxious weeds shall be prohibited. Weeds shall be defined as all grasses, annual plants, and vegetation other than trees or shrubs other than cultivated flowers and gardens.

Upon failure of the owner or agent having charge of a property to cut and destroy weeds after service of a notice of violation, they shall be subject to prosecution in accordance with Section 106.3 and as proscribed by the City of Saint Louis. Upon failure to comply with the notice of violation, any duly authorized employee of the Forestry Division or contractor hired by the City of Saint Louis shall be authorized to enter upon the property in violation and cut and destroy the weeds growing thereon, and the costs of such removal shall be paid by the owner or agent responsible for the property.

302.5 Rodent Harborage. All structures and exterior property shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by approved processes which will not be injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent infestation. Control of rodents and their harborage shall be regulated by the City of Saint Louis Health Department.

302.6 Exhaust Vents. Location and usage of exhaust vents shall be as regulated in the Mechanical Code.

302.7 Accessory Structures. All accessory structures, including attached and detached garages, fences, and walls, shall be maintained structurally sound and in good repair. All garages opening onto an alley or street shall have doors in good repair and capable of being closed and locked.

302.8 Motor Vehicles, Residential Areas. Except as provided in other regulations, currently unlicensed, unregistered or uninspected, derelict, or abandoned motor vehicle shall not be parked on any property, in a state of major disassembly or disrepair, or in the process of being stripped or dismantled unless such work is provided in a structure or similarly enclosed area designed and approved for such purposes. No vehicle of any type shall at any time undergo major overhaul, including body work, in a residential district unless such work is provided in a structure or similarly enclosed area designed and approved for such purposes.

Except as provided in other regulations and approved by the building official, no currently unregistered or uninspected, derelict, or abandoned motor vehicle shall be permitted on any property in a nonresidential district and no such vehicle shall at any time be in a state of major disassembly or disrepair; nor shall it be in the process of being stripped or dismantled. (Also see Ordinance 60935).

Add Section 302.10 to read as follows:

302.10 Metal Structures and Fixtures. All metal structures, metal fixtures appurtenant to such structures, and metal fixtures attached to any property shall be free of rust and maintained weatherproof and in good condition.

Change Section 304.3 to read as follows:

304.3 Premises Identification. Approved numbers or addresses shall be provided for all buildings in such a position as to be plainly visible and legible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of four inches high with a minimum stroke width of 0.5 inch.

If there is an alley, numbers shall also be placed on the alley elevation of the premises on which the house, building, or structure is located. If there is a garage or

carport fronting on an alley, house numbers shall also be placed on the alley elevation of the garage or carport.

Change Sections 304.6 and 304.7 to read as follows:

304.6 Exterior Walls. Every exterior wall shall be free of holes, breaks, loose or rotting boards or timbers, and any other conditions which might admit rain or dampness to the interior portion of the walls or to the occupied spaces of the building. All exterior surface materials including wood, composition, or metal siding shall be maintained weatherproof and shall be properly surface coated when required to prevent deterioration. Tuckpointing shall not be loose or missing.

304.7 Roofs and Drainage. The roof and flashing shall be sound, tight, and not have defects that admit rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters, and downspouts shall be maintained in good repair and free from obstructions and shall not discharge in a manner that adversely affects adjacent property.

Add Section 304.10.1 to read as follows:

304.10.1 Stair Dimension Tolerances. Treads and risers shall be significantly the same in depth or height so as to not create a trip hazard.

Change Section 304.14 to read as follows:

304.14 Insect Screens. During the period from April 1 to November 1, every door, window, and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas, or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged, or stored shall be supplied with approved tightly fitting screens of not less than sixteen mesh per inch and every swinging door shall have a self-closing device in good working condition.

Exception: Screen doors shall not be required where other approved means such as air curtains or insect repellent fans are employed.

Add Section 305.5.1 to read as follows:

305.5.1 Stair Dimension Tolerances. Treads and risers shall be significantly the same in depth or height so as to not create a trip hazard.

Add Section 305.7 to read as follows:

305.7 Storage. The interior of every structure shall be free from excessive storage, as determined by the building official, to maintain the health, safety, and welfare of the occupants. Storage shall not interfere with the clearances required for egress or the operation of plumbing, mechanical, or electrical equipment.

Change Section 307.1 to read as follows:

307.1 General. Every exterior and interior flight of stairs having more than four (4) risers shall have a handrail on one side of the stair and every portion of a stair, landing, balcony, porch, deck, ramp or other walking surface which is more than thirty (30) inches above the floor or grade below shall have guards. Handrails shall not be less than thirty-four (34) inches high or more than thirty-eight (38) high measured vertically above the nosing of the tread or above the finished floor of the landing or walking surface. Guards shall not be less than thirty-six (36) inches high above the floor of the landing, balcony, porch, deck, ramp or other walking surface.

Change Section 308.1 to read as follows:

308.1 General. All exterior property and premises and the interior of every structure shall be free from any accumulation of rubbish or garbage. The control of rubbish and garbage shall be the responsibility of the Health Department and Street Department, Refuge Division.

Delete Sections 308.2 through 308.3.2. in their entirety.

Change Section 309 to read as follows:

SECTION 309 PEST ELIMINATION

309.1 Owner. The owner of any structure shall be responsible for extermination of rats, insects, or other pests within the structure prior to renting, leasing, or selling the structure. Primary enforcement of Section 309 is by the Health Department.

309.2 Single Occupancy. The owner and occupant of a structure containing a single dwelling unit or of a single nonresidential structure shall be equally responsible for the extermination of any insects, rodents, or other pests in the structure or on the premises.

309.3 Multiple Occupancy. The owner of a structure containing two or more dwelling units, a multiple occupancy, a rooming house, or a nonresidential structure shall be responsible for extermination in the public or shared areas of the structure and exterior property. If infestation is caused by failure of an occupant to prevent such infestation in the area occupied, the occupant and owner shall be responsible for extermination.

309.4 Continued Rodent Infestation. Continuing or repeated incidents of rodent infestation determined

from the official records shall require the installation of rat and vermin proof walls. The rat and vermin proof walls shall be installed in accordance with the Building Code.

CHAPTER 4 IS AMENDED AS FOLLOWS:

Change Section 404.4.1 to read as follows:

404.4.1 Room Area. Every living room shall contain at least 120 square feet; every room occupied for sleeping purposes by one occupant shall contain at least 70 square feet of floor area; and every room occupied for sleeping purposes by more than one person shall contain at least 50 additional square feet of floor area for each additional occupant thereof. Change Section 404.5 and Table 404.5 to read as follows:

404.5 Overcrowding. Dwelling units shall not be occupied by more occupants than permitted by the minimum area requirements of Table 404.5

Table 404.5

MINIMUM AREA REQUIREMENTS

SPACE	MINIMUM AREA IN SQUARE FEET		
	1—2 occupants	3—5 occupants	6 or more occupants
Living room	120	120	150
Dining room	No requirements	80	100
Kitchen	50	50	60
Bedrooms	Shall comply with Section 404.4.1		

Add Section 404.5.2 to read as follows:

404.5.2 Combined Spaces. Combined living room and dining room spaces shall comply with the requirements of Table 404.5 if the total area is equal to that required for separate rooms and if the space is so located that it functions as a combination living room/dining room. This option is also applicable for a combination kitchen/dining room.

CHAPTER 5 IS AMENDED AS FOLLOWS:

Change Section 502.5 to read as follows:

502.5 Public Toilet Facilities. Public toilet facilities shall be maintained in a safe, sanitary, and working condition in accordance with the Plumbing Code. Except for periodic maintenance or cleaning, public access and use shall be provided to the public facilities at all times during occupancy of the premises.

Add Section 503.1.1 to read as follows:

503.1.1 Toilet Partitions. Every nonresidential structure that requires or supplies a water closet shall provide within the toilet room partitions, enclosures, or compartments for privacy between water closets and shall comply with fixture clearance requirements of the Plumbing Code for such installations.

Change Section 505.1 to read as follows:

505.1 General. Every sink, lavatory, bathtub or shower, drinking fountain, water closet, or other plumbing fixture shall be properly connected to a public water system. All kitchen sinks, lavatories, laundry facilities, bathtubs, and showers shall be supplied with hot or tempered and cold running water in accordance with the Plumbing Code.

Change Section 505.5.1 to read as follows:

505.5.1 Abandonment of Systems. Where a nonpotable water reuse system or a rainwater collection and distribution system is not maintained or the owner ceases use of the system, the system shall be abandoned in accordance with the Plumbing Code.

Change Section 507 to read as follows:

SECTION 507 STORM DRAINAGE

507.1 General. Drainage of roofs and paved areas, yards and courts, and other open areas on the premises shall not be modified or altered to discharge in a manner that adversely affects adjacent property or creates a public nuisance.

507.2 Gutters and Downspouts. Unless otherwise approved by the Plumbing Inspection Section, all gutters and downspouts must be maintained so as to function properly and must be sewer connected where existing drain connections are provided. Primary structures and room additions with a roof area of less than 550 square feet and all accessory structures, including residential garages, shall not be sewer connected provided the surface drainage water does not adversely affect the adjacent property or create a nuisance. Surface drainage shall be diverted to a public right-of-way, storm sewer conveyance, or other point of collection so as not to create a hazard. Lots shall be graded so as to drain water away from foundation walls.

CHAPTER 6 IS AMENDED AS FOLLOWS:

Add Section 602.1.1 to read as follows:

602.1.1 Enforcement. The Health Department is the principal enforcement agency of Section 602.

Change 602.2 to read as follows:

602.2 Residential Occupancies. Dwellings shall be provided with heating facilities capable of maintaining a room temperature of 68°F (20°C) in all habitable rooms, bathrooms, and toilet rooms. Cooking appli-

ances and portable unvented fuel-burning space heaters shall not be used as a means to provide required heating.

Change 602.3 to read as follows:

602.3 Heat Supply. Every owner and operator of any building who rents, leases, or lets one or more dwelling units, rooming units, dormitory, or guestrooms on terms, either expressed or implied, shall supply sufficient heat during the period from October 1 to April 30 to maintain a room temperatures of not less than 68°F in all habitable rooms, bathrooms, and toilet rooms. The heat supply shall be permanently installed.

Exception: When the outdoor temperature is below the winter outdoor design temperature for the City of Saint Louis, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the City of Saint Louis shall be zero degrees Fahrenheit.

Change 602.4 to read as follows:

602.4 Occupiable Work Spaces. Indoor occupiable work spaces shall be supplied with heat during the period from October 1 to April 30 to maintain a temperature of not less than 65°F during the period the spaces are occupied.

Exceptions:

1. Processing, storage, and operations areas that require cooling or special temperature conditions.

2. Areas in which persons are primarily engaged in vigorous physical activities.

CHAPTER 7 IS AMENDED AS FOLLOWS:

Add Section 701.3 to read as follows:

701.3 Enforcement. The designated enforcement agency for this chapter shall be as set forth in Section 104.1.1 of the Building Code

Add Section 702.1.1 to read as follows:

702.1.1 Dual Exits over Two Stories. All habitable buildings over two stories in height containing one or more dwelling units above the second floor shall provide two separate exits from each floor above the second floor, accessible to each dwelling unit on said floor. All required exit facilities shall lead to a public thoroughfare either directly or through a court or yard, and passage to such exits shall not lead through any other dwelling unit. Dual means of exit shall consist of two interior stairs discharging directly or through a rated exit enclosure to the outside, or one interior and one exterior stair or existing fire escape accessible to all dwelling units on each floor above the second floor and discharging directly or through a court or yard to a public thoroughfare.

Exceptions:

1. Buildings permitted to have only one means of egress under the Building Code.

2. Single-Family Dwelling Units 2½ or 3 stories in height of Type III (exterior masonry) construction, shall be exempt from the requirements for two exits.

3. A single exit shall be permitted from townhouse dwelling units located on the second and third floors in buildings of Type III (exterior masonry) construction provided that the exit is from the second floor with a minimum of 40% of the habitable space located on the second floor and all of the following requirements are met:

A. Horizontal and vertical fire separation assemblies based on the Use Group classification between the first and second floor as determined under the Building Code. A horizontal fire separation is not required between a first floor commercial space and dwelling units above provided that an AC-powered battery back-up interconnected smoke detection system is installed in the commercial space and basement with remote alarms in all dwelling units above or in the common stair and hall if audible within all dwelling units.

B. The building is limited to a maximum of six dwelling units and three stories in height.

C. An AC-powered battery back-up interconnected smoke detection system is installed for each dwelling unit throughout the building including the basement. The location of the smoke detectors shall be sufficient to detect smoke in any habitable room or basement.

Change Section 702.2 to read as follows:

702.2 Aisles. The required width of aisles in accordance with the Building Code shall be unobstructed.

Add Section 704.1.4 to read as follows:

704.1.4 Standpipe Systems. Standpipe systems shall be in proper operating condition at all times and readily identified and fully accessible. Hose connections shall be unobstructed.

CHAPTER 8 IS AMENDED AS FOLLOWS:

Modify Chapter 8 by adding the following:

IAPMO International Association of Plumbing and Mechanical Officials

5001 E. Philadelphia Street

Ontario, CA 91761-2816

UPC-09-Uniform Plumbing Code

102.3, 201.3, 502.5, 503.1.1, 505.1, 505.5.1, 602.2, 602.3

CHAPTER 9 IS ADDED AS FOLLOWS:

CHAPTER 9

FACILITIES REQUIRING PLAT AND PETITION

SECTION 901 GENERAL

901.1 Scope. Every building used in whole or in part as a boarding house, rooming house, dormitory, or special residential use shall conform to the requirements of this chapter.

901.2 Hazards. Any boarding house, rooming house, dormitory, or special residential use which shall fail to conform to the requirements of this code or other adopted codes and is in violation of any laws of the City of Saint Louis and is detrimental to the health, safety, and welfare of the inhabitants of the City of Saint Louis shall be deemed a hazard.

SECTION 902 DEFINITIONS

902.1 Definitions. The following words and terms shall, for the purpose of this chapter, have the meanings shown herein.

Boarding house. Residential occupancy arranged or used for lodging for compensation, with or without meals, and not occupied as a single-family unit. The occupants are transient in nature.

BPS permitted facilities. Any facility regulated and permitted under this chapter prior to the adoption of this chapter.

Dormitory. A space in a building where group sleeping accommodations are provided in one room or in a series of closely associated rooms for persons not members of the same family group, under joint occupancy and single management as in college dormitories or fraternity houses.

Rooming house. Residential occupancy arranged or used for lodging for compensation with or without meals and not occupied as a single-family unit. The occupants are not transient in nature.

Special residential use. This means any occupancy being used, with or without compensation to the operator, as a shelter for the homeless, a facility for battered spouses or children, a group home, a 24-hour daycare (adult and/or child), halfway house, social rehabilitation facility, or an alcohol and/or drug abuse treatment center.

SECTION 903 PERMIT & PLAT & PETITION REQUIREMENTS

903.1 Plat and Petition Requirements. Prior to filing an application for a Certificate of Occupancy, an applicant seeking to operate a boarding house, rooming house, dormitory or special residential use shall obtain the plat and petition forms from the Zoning Office. Upon completion of the forms, an applicant to operate a dormitory, rooming house, boarding house, or special residential use, together with all other requirements of this chapter, shall file a plat or drawing showing its location or premises together with the position of the building to be used thereon and a written petition in favor of the issuance of such occupancy permit signed by a majority of the property owners or registered voters residing within the prescribed petition circle drawn by a radius of 500 feet plus one-half of the width of the front of the premises from the center of such premises projected to the streets. Notwithstanding the above, no occupancy permit shall be approved wherein a church, elementary school, or secondary school is located within the radius herein above described. It shall be unlawful to operate a dormitory, rooming house, boarding house, or special residential use without first complying with the plat and petition requirements as set forth herein.

Exceptions:

1. Sheltered workshops and residence facilities authorized by RSMo 205.968 to 205.972 (2000), as amended, shall be and are hereby exempted from the plat and petition and the church and school radius requirements set forth herein.

2. Dormitories as defined in Section 902.1 are exempt from the plat and petition and the church and school radius requirements if they are both owned and operated by a state or private university or college and located within the boundaries of said state or private University or College on a designated campus of not less than 30 acres.

3. The Building Commissioner may waive plat and petition requirements for certain special residential uses that require that the location of the special residential use remain confidential due to the type of clients it serves or shelters (e.g., battered spouse shelter), for temporary emergency shelters that are needed due

to weather or natural disaster conditions, or when a unique hardship exists and the use will not have a detrimental impact on the neighborhood. In the event such a waiver is granted, the Building Commissioner may make the waiver subject to certain conditions designed to prevent detrimental impacts on the neighborhood.

903.1.1 Notification of termination. The Director of the Saint Louis Office for Mental Retardation/ Developmental Disabilities Resources shall notify the Director of Public Safety in writing within ten days when the operation of any sheltered workshop or residence facility is terminated voluntarily or otherwise. The exemption herein granted for that location shall be automatically withdrawn.

903.2 Certificate of Occupancy. Upon approval of the plat and petition from the Zoning Office, the applicant shall file with the building official an application for a Certificate of Occupancy in accordance with the Building Code, and if the code official finds that the Zoning Code permits such usage in the district in which the proposed building is located, the building official shall take the application of the applicant. If the building official finds that the comprehensive zoning ordinance does not permit such usage in the district in which the proposed building is located, the building official shall not approve the application for a rooming house, boarding house, dormitory, or special residential use. Appeals on the zoning aspects of the Certificate of Occupancy lie within the Board of Adjustment.

903.3 Denial of Permit or Waiver - Hearing. If the occupancy permit is denied due to its failure to comply with the provisions of this chapter or because the Building Commissioner abused his discretion in not granting a waiver, the applicant shall, upon written request, be granted a hearing before the Board of Building Appeals on a day designated by it for reconsideration of the denial of such permit or waiver. After considering such request and the evidence and argument, if any, submitted in support thereof, the Board may issue said permit or waiver or confirm the action in refusing to do so. In considering whether an abuse of discretion has occurred, the Board may consider the number of occupants of the facility and other factors considered by the Building Commissioner.

903.4 Notice of Violation to Violator - Correction or Abatement. If the building official finds any rooming house, boarding house, dormitory, or special residential use in violation of any of the requirements of this chapter, the building official shall immediately notify the applicant thereof to correct or abate same. If the violation is not abated within a reasonable period, the building official shall file a report of such violation with the Board of Building Appeals with the building official's recommendation to revoke said permit. The Board shall notify the applicant or the applicant's resident agent of the building official's recommendation and shall within a reasonable time conduct a hearing as to whether or not the occupancy permit should be revoked. If the Board finds that the rooming house, boarding house, dormitory, or special residential use is being operated in violation of any of the requirements of this chapter, the Board shall immediately revoke the permit.

903.4.1 Revocation of Permit - license revocation. Should any permit issued under this chapter be revoked, the License Collector shall, immediately upon receipt of such notice of revocation, revoke the license of such applicant, if any.

903.5 Change of Owner - New Application to Be Filed. Any change of ownership of a boarding house, rooming house, dormitory, or special residential use shall require that a new application and new neighborhood consent petition be filed as set forth in this chapter and shall be subject to rules and regulations and ordinances in effect at the date of such application.

903.6 BPS Permitted Facilities. Any facility that has a valid BPS permit at the time this chapter becomes effective, and the facility was regulated by this chapter, will not be required to submit a new plat and petition or certificate of occupancy to operate under this chapter. However, all BPS permitted facilities, except hotels, shall be subject to all other provisions and regulations of this chapter.

SECTION 904 FEES & NOTICES

904.1 Plat & Petition Fee. Application for a certificate of occupancy for any facility regulated under this chapter shall be charged a separate fee, as set forth in the Zoning Code, for processing and reviewing the plat and petition.

904.2 Service of Notice. All notices provided herein to be served upon the owner, applicant, agent of owner, or occupant, as the case may require, shall be deemed served upon such owner, applicant, agent of owner, or occupant, as the case may require, if a copy thereof shall:

1. Be delivered to them personally; or

2. If not found, by leaving a copy at the usual place of abode with a member of the family of sixteen or more years of age; or

3. By posting a copy in a conspicuous place in or about the dwelling affected by the notice; or

4. By sending a copy of the notice by registered letter with a return receipt requested to the address specified in the to the last known address; or

5. If registered letter with copy is returned with receipt showing it has not been delivered to them, by posting a copy thereof in a conspicuous place in or about the dwelling affected by the notice.

904.3 Form of Notice. All notices provided herein shall:

1. Be in writing;

2. Include a description of the real estate sufficient for identification;

3. Include a statement of the reason or reasons why notice is being issued;

4. Include a description of the violations required to be abated to bring the premises into compliance with the provisions of the ordinance and any rules or regulations adopted pursuant thereto.

SECTION 905 BUILDING REQUIREMENTS

905.1 Existing BPS Permitted Facilities. All currently existing permitted rooming houses, boarding houses, dormitories, and special residential uses shall, at a minimum, be governed by the provisions of the Building and Fire Code under which they were initially licensed. Any alteration or change of occupancy shall be made to comply with the Existing Building Code.

905.2 New Certificates of Occupancy. All new boarding houses, rooming houses, dormitories, and special residential uses must meet the requirements as defined in this code and the current Building Code as amended.

905.3 Change of Operation. All existing rooming houses, boarding houses, dormitories, and special residential uses that have a change in their procedure/ operation such as an increase or decrease in number of sleeping rooms or occupants or a reconfiguration of space shall comply with the Existing Building Code.

When a change of operation occurs altering the original occupancy permit issued, such an increase or decrease in the number of rooms, the applicant shall comply with all adopted codes necessary to achieve the public safety of its occupants.

905.4 Appeals. Appeals of this chapter shall have their jurisdiction with the Board of Building Appeals of the City of Saint Louis. An appeal shall stay all proceedings in furtherance of the action appealed from unless the Building Commissioner or Health Commissioner shall certify to the Board subsequent to the filing of any notice of appeal that, by reason of the facts stated in the certificate, a stay would cause imminent peril to life or property. In such case, proceedings shall not be stayed otherwise than by the order of any court of competent jurisdiction.

905.5 Master Room Keys. It shall be the duty of the applicant to keep available on the premises at all times proper keys to all rooms so that proper inspection can be made by the Building Inspection Section and the Department of Health or Police Department.

905.6 Room Numbers. Every rooming unit in every rooming house or boarding house shall be numbered and said number to be placed on the outside of the door to such unit. No two units shall bear the same number.

905.7 Register Required. A boarding house, rooming house, dormitory, or special residential use shall at all times keep a standard register in which shall be inscribed the names of all occupants renting or occupying rooming units in such establishment. The register shall be kept at the establishment and signed by the person renting or occupying such unit. After the name or names of persons renting or occupying such unit, the applicant or the applicant's agent shall write the number of the room or rooms which each person is to occupy together with the date and hour when such room or rooms are rented. All of which shall be done before such person is permitted to occupy such room or rooms. The register shall be at all times open to inspection by the building official, Health Commissioner, or fire official of the City of Saint Louis or Police Department.

905.7.1 False Registration Prohibited. No person shall knowingly write or cause to be written in any rooming house, boarding house, dormitory, or special residential use any other or different name than the true name of such person or the name by which such person is generally known.

SECTION 906 POWERS AND DUTIES

906.1 Power of Health Commissioner to Make Rules. The Health Commissioner shall have power to make such rules and regulations as in the Health Com-

missioner's opinion may be reasonably necessary for carrying out the provisions of this part insofar as they relate to the public health. Such rules and regulations shall be in writing and a copy filed with the building official.

906.2 Duty of Building Official. It shall be the duty of the building official to make or cause to be made annual inspections of all boarding houses, rooming houses, dormitories, or special residential uses. It shall also be the duty of the building official to investigate changes in the use group and building classification and require a new occupancy permit where necessary.

906.3 Cooperation of Other Agencies. All state and local agencies shall forward all inquiries and inspection requests to the City of Saint Louis Building Division for further investigation.

SECTION 907 CONDEMNATION

907.1 Procedures for Condemning. The designation of boarding houses, rooming houses, dormitories, or special residential uses as unfit for human habitation and the procedure for the condemnation and the placarding of such unfit boarding houses, rooming houses, dormitories, and special residential uses shall be carried out in compliance with the following requirements.

907.2 Conditions Requiring Condemnation. The code official shall condemn as unfit or unsafe for occupancy any rooming house, dormitory or special residential use per the requirements listed in the current section of the Building Code.

907.3 Notice of Condemnation to Owner. Whenever the building official has condemned a boarding house, rooming house, dormitory, or special residential use or portion thereof as unfit for human habitation, the building official shall immediately give notice to the owner, applicant, or resident agent thereof of such condemnation and of the intent to placard such boarding house, rooming house, dormitory, or special residential use as unfit for human habitation. Such notice shall:

1. Be in writing;

2. Contain a description of the real estate sufficient for identification;

3. Contain a statement of the grounds of such condemnation as unfit for human occupancy;

4. Contain a description of the violations;

5. Contain a statement informing the owner of their right to appeal such action to the building official within ten days after same is served.

907.4 Hearing Before Board of Building Appeals. Any owner or applicant affected by notice relating to condemnation of a boarding house, rooming house, dormitory, or special residential use as unfit for human habitation may request and shall be granted a hearing before the Board of Building Appeals provided that such person shall file in the office of the building official a written petition requesting such hearing and setting forth a statement of the grounds therefor within ten calendar days after the date of the notice. Within ten calendar days after receipt of such petition, the building official shall set the time and place of such hearing and shall give the petitioner written notice thereof.

907.4.1 Time of Hearing. At such hearing the petitioner shall be given an opportunity to be heard and to show cause why such notice should be modified or withdrawn. The hearing shall be scheduled not later than 45 calendar days after the date on which the petition was filed provided that upon written application of the petitioner to the building official, the building official may postpone the date of the hearing for a reasonable time beyond such 45-day period if, in the official's judgment, the petitioner has submitted a good and sufficient cause for such postponement.

907.5 Posting Notice of Condemnation. If no appeal has been taken within the ten-calendar-day period, or if after such hearing, the Board of Building Appeals affirms the decision to condemn said premises, the building official shall post, in a conspicuous place or places upon the affected building, a placard or placards bearing the following words, "Condemned as unfit for human habitation" or the words "Condemned for Occupancy" which shall have the same meaning.

907.6 Vacation of Condemned Building. Any boarding house, rooming house, dormitory, or special residential use that has been condemned and placarded as unfit for human habitation by the building official shall be vacated within a reasonable time as required by said official. No owner or applicant shall let to any person for human habilitation and no person shall occupy said rooming house, boarding house, dormitory, or special residential use which has been condemned and placarded by the building official after the date on which the building official has required the affected structure to be vacated.

907.7 Correction of Premises. No boarding house, rooming house, dormitory, or special residential use which has been condemned and placarded as unfit for human habitation shall again be used for human habitation until written approval is secured from and such placard is removed by the building official. The building official shall remove such placard whenever the defect or defects upon which the condemnation and placard action was based shall have been eliminated. The building official may require permits for the corrective work.

906.7.1 Removal of Placard Unlawful. No person shall deface or remove any placard from any boarding house, rooming house, dormitory, or special residential use which has been condemned as unfit for human habitation and placarded as such except as provided in the currently adopted Building Code. (Ord. No. 70798, § 3, 7-6-2018.)

25.32.030 Penalty.

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof, or who shall erect, construct, alter, extend, repair, remove, demolish, use, or occupy any building, structure, premises, or equipment regulated by this code in violation of an approved construction document or directive of the building official or the Board of Building Appeals, or of a permit or certificate issued under the provisions of this code, shall be subject to, a fine as set forth in Section 25.33.040. Each day that a violation continues shall constitute a separate and distinct offense.
(Ord. No. 71990, § 2, 2-25-2025; Ord. No. 70798, § 4, 7-6-2018.)

Chapter 25.33

ENFORCEMENT OF CODE VIOLATIONS

Sections:

25.33.010 Violation of regulatory code provisions unlawful.
25.33.020 Notice of violation.
25.33.030 Administrative citation.
25.33.040 Administrative citation fine.
25.33.050 Payment of fine.
25.33.060 Request for hearing.
25.33.070 Hearing Officer designated.
25.33.080 Hearing.
25.33.090 Written decision.
25.33.100 Failure to pay fine.
25.33.110 Final decision by Hearing Officer and Authorized Collection Procedures.

25.33.010 Violation of regulatory code provisions unlawful.

It shall be unlawful for any person, firm or corporation to be in conflict with or in violation of any of the provisions of any regulatory code relating to buildings, structures and premises in the City of St. Louis as such codes exist at the time of the effective date of the ordinance codified in this chapter and as such codes may be amended in the future. (1994 C., § 25.33.010; Ord. No. 66857, § 1, 2005.)

25.33.020 Notice of violation.

Whenever the code official determines that there has been a violation of any regulatory code relating to buildings, structures or premises or has grounds to believe that a violation has occurred, notice shall be given to the owner or the person or persons responsible therefor in the following manner:

A. Such notice shall:

1. Be in writing;

2. Include a description of the real estate sufficient for identification;

3. Include a statement of the violation or violations and why the notice is being issued;

4. Include a correction order allowing a reasonable time to make the repairs and improvements required to bring the dwelling unit, structure or premises into compliance with the provisions of applicable code; and

5. Inform the property owner of the right to appeal.

B. The notice shall be directed to the owner or owners of such building, structure or premises as recorded most recently in the City of Saint Louis Assessor's Office. The notice shall be served in one of the following ways:

1. Delivered personally to owner or owners; or

2. By posting the notice in a conspicuous place in or about the building, structure or premises affected by such notice; or

3. By mailing a copy of said notice by regular mail, postage prepaid, direct to the owner or owner's place of business or the address currently recorded in the Assessor's Office of the City of Saint Louis; or

4. If the notice is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the building, structure or premises affected by such notice. (1994 C., § 25.33.020; Ord. No. 67885, § 1, 2008; Ord. No. 66857, § 2, 2005.)

25.33.030 Administrative citation.

A. If the notice of violation is not complied with, the code official shall have the authority to issue an administrative citation to any person responsible for the violation.

B. Each administrative citation shall contain the following information:

1. The date of the violation or, if the date of the violation is unknown, then the date the violation is identified;

2. The address or a definite description of the location where the violation occurred;

3. The section of the applicable code violated and a description of the violation;

4. The amount of the fine for the code violation;

5. A description of the fine payment process, including a description of the time within which and the place to which the fine shall be paid;

6. An order prohibiting the continuation or repeated occurrence of the code violation described in the administrative citation;

7. A description of the administrative citation review process, including the time within which the administrative citation may be contested and the place from which a request for hearing form to contest the administrative citation may be obtained; and

8. The name and signature of the citing code official. (1994 C., § 25.33.030; Ord. No. 66857, § 3, 2005.)

25.33.040 Administrative citation fine.

A. The administrative citation fine amount for a first violation under the provisions of this chapter shall be one hundred dollars ($100.00).

B. The administrative citation fine for repeat violations of the same code provision by the same person at the same property within twelve months from the date of the first administrative citation shall be two hundred fifty dollars ($250.00).

C. The administrative citation fine for the second repeat and all subsequent repeat violations of the same code provision by the same owner at the same property shall be five hundred dollars ($500.00).

D. Notwithstanding the above, for any vacant property, the administrative citation fine for a first violation of Section 25.01.020, 119.3.1 ("Secured Buildings"), and 121.6 ("Vacant Building Maintenance") shall be five hundred dollars ($500.00), and shall be one thousand dollars ($1,000.00) for all subsequent repeat violations by the same owner at the same property.

E. Notwithstanding the above, the administrative citation fine for a first violation of Section 25.01.020, 123.1 ("Wrecking, Demolition, or Razing of Buildings or Structures") shall be thirty thousand dollars ($30,000.00) or one-half (½) of the appraised value of the property prior to demolition, as shown in the records of the City of Saint Louis Assessor's Office, whichever is greater. This provision shall not apply to any accessory building as defined in Section 26.08.020, Accessory building.

F. Any administrative citation fine which is not paid on or before its due date shall accrue a penalty in an amount equal to the original administrative citation fine. Said penalty shall be collected in the same manner as the underlying fine.
(1994 C., § 25.33.040; Ord. No. 71990, § 1, 2-25-2025; Ord. No. 71989, § 2, 2-24-2025; Ord. No. 66857, § 4, 2005.)

25.33.050 Payment of fine.

A. The fine shall be paid to the City within thirty days from the date of the administrative citation.

B. Any administrative citation fine paid pursuant to Subsection A shall be refunded if it is determined, after a hearing, that the person charged in the administrative citation was not responsible for the violation or that there was no violation as charged in the administrative citation.

C. Payment of a fine under this chapter shall not excuse or discharge any continuation or repeated occurrence of the code violation that is the subject of the administrative citation. (1994 C., § 25.33.050; Ord. No. 66857, § 5, 2005.)

25.33.060 Request for hearing.

A. Any recipient of an administrative citation may contest that there was a violation of the code or that he or she is the responsible party by completing a request for administrative hearing petition and returning it to the office of the Building Commissioner, along with a non-refundable filing fee of $20.00, within thirty days from the date of the administrative citation.

B. A request for administrative hearing petition may be obtained from the office of the Building Commissioner.

C. The person requesting the hearing shall be notified of the time and place set for the hearing at least ten days prior to the date of the hearing.

D. If the code official submits an additional written report concerning the administrative citation to the hearing officer for consideration at the hearing, then a copy of this report also shall be served on the person requesting the hearing at least five days prior to the date of the hearing. (1994 C., § 25.33.060; Ord. No. 66857, § 6, 2005.)

25.33.070 Hearing Officer designated.

The Public Safety Director shall designate the Hearing Officer for the administrative hearing. (1994 C., § 25.33.070; Ord. No. 66857, § 7, 2005.)

25.33.080 Hearing.

A. A hearing before the Hearing Officer shall be set for a date that is not less than fifteen (15) days and not more than ninety (90) days from the date that the request for hearing is filed in accordance with the provisions of this chapter.

B. At the hearing, the party contesting the administrative citation shall be given the opportunity to testify and to present evidence concerning the administrative citation.

C. The failure of any recipient of an administrative citation to appear at the administrative citation hearing shall constitute a failure to exhaust their administrative remedies.

D. The code violation notice, property record, and related documentation in the proper form, or a copy thereof, shall be prima facie evidence of the municipal code violation. The code official who issued the notice of violation need not be present.

E. The Hearing Officer may continue the hearing and request additional information from the code official or the recipient of the administrative citation prior to issuing a written decision. (1994 C., § 25.33.080; Ord. No. 66857, § 8, 2005.)

25.33.090 Written decision.

A. After considering all of the testimony and evidence submitted at the hearing, the Hearing Officer shall issue a written decision to uphold or cancel the administrative citation and shall list in the decision the reasons for that decision. The decision of the Hearing Officer shall be final.

B. If the Hearing Officer determines that the administrative citation should be upheld, the Hearing Officer shall set forth in the decision a payment schedule for the fine.

C. If the Hearing Officer determines that the administrative citation should be canceled and the fine was deposited with the City, then the City shall promptly refund the amount of the deposited fine, together with interest at the average rate earned on the City's portfolio for the period of time that the fine amount was held by the City.

D. The recipient of the administrative citation shall be served with a copy of the Hearing Officer's written decision. (1994 C., § 25.33.090; Ord. No. 66857, § 9, 2005.)

25.33.100 Failure to pay fine.

Any person who fails to pay to the City any fine imposed pursuant to the provisions of this chapter on or before the date that fine is due also shall be liable for the payment of any applicable late payment charges set forth in the schedule of fines. (1994 C., § 25.33.100; Ord. No. 66857, § 10, 2005.)

25.33.110 Final decision by Hearing Officer and Authorized Collection Procedures.

A. The Hearing Officer may not impose incarceration or any fine in excess of the amount allowed by the schedule of fines. Any sanction, fine or costs, or part of any fine, other sanction or costs, remaining unpaid after the exhaustion of, or the failure to exhaust, judicial review procedures under RSMo Ch. 536 shall be a debt due and owing the City.

B. Any final decision or disposition of a code violation by a Hearing Officer shall constitute a final determination for purposes of judicial review, subject to review under RSMo Ch. 536. After expiration of the judicial review period under RSMo 536 unless stayed by a court of competent jurisdiction, the administrative tribunal's decisions, findings, rules, and orders may be collected in accordance with Section C below.

C. Any administrative citation fine issued pursuant to this chapter that is not paid in accordance with Section 23.33.050 may be collected by any of the following methods:

1. The amount of the unpaid administrative citation fine may be certified by the Building Commis-

sioner, or his designated officer, and submitted to the Office of the Comptroller for issuance of a special tax bill, to be collected in the same manner as real estate taxes under the Municipal Land Reutilization Law, RSMo Ch. 92.700 et seq.

These special tax bills may not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such special tax bills or liens. Further, special tax bills shall be permitted to be waived when ownership of said property for which the bill was issued is accepted by Land Reutilization Authority, Saint Louis Development Corporation, or any other City agency.

2. Any administrative citation fine that remains unpaid for more than one (1) year may be added to the annual real estate tax bill and collected in the same manner and procedure for collecting real estate taxes. If the fines are not paid by the December 31 of the year in which the costs and fines are included in the tax bill, the tax bill shall be considered delinquent, and the collection of the delinquent bill shall be governed by the laws governing delinquent and back taxes. The tax bill shall be deemed a personal debt against the owner from the date of issuance, and shall also be a lien on the property from the date the bill becomes delinquent until paid.

3. The amount of the unpaid administrative citation may be enforced in the same manner as a judgment entered by a court of competent jurisdiction. Upon being recorded in the manner required by state law or the Uniform Commercial Code, a lien may be imposed on the real or personal property of any defendant entering a plea of nolo contendere, pleading guilty to, or found guilty of a municipal code violation in the amount of any debt due the City under this section and enforced in the same manner as a judgment lien under a judgment of a court of competent jurisdiction.

4. Any other procedure authorized by state law to collect a debt due and owing against the City.

D. Collected Funds—Impacted Tenants' Fund. All funds received pursuant to this chapter shall be deposited into the Impacted Tenants' Fund. Monies in the Fund may be used for administrative costs, provided that such costs do not exceed five (5) percent of the Fund balance on an annual basis. The remaining funds shall be used exclusively for the purposes set forth in this chapter.

(1994 C., § 25.33.110; Ord. No. 72002, § 2, 6-3-2025; Ord. No. 71991, § 1, 2-24-2025; Ord. No. 71990, § 3, 2-25-2025; Ord. No. 71840, § 5, 5-1-2024; Ord. No. 70931, § 1, 4-27-2018; Ord. No. 70737, § 1, 3-12-2018; Ord. No. 66857, § 11, 2005.)

Chapter 25.36

SMOKE HOUSES

Sections:

25.36.010 Definitions.
25.36.020 Where permitted.
25.36.030 Construction regulations.
25.36.040 Compliance—Animals.
25.36.050 Sale of food prohibited.
25.36.060 Compliance—Air pollution.
25.36.070 Penalty for violations.

25.36.010 Definitions.

For purposes of this chapter the following terms shall apply:

"Smoke house" shall mean any building or structure where meat or fish is cured by means of smoke. (1994 C., § 25.36.010; Ord. No. 65944, § 1, 2003.)

25.36.020 Where permitted.

Smoke houses shall be permitted within residential zoning districts in the City of St. Louis to the extent that the use of such building or structure is in compliance with the provisions of this chapter and any other applicable ordinance or statute. Any building or structure intended to be used as a smoke house within a residential zoning district which exceeds fifty (50) square feet in size shall require a permit from the Building Commissioner prior to construction and shall conform to all applicable regulatory codes for such structure. (1994 C., § 25.36.020; Ord. No. 65944, § 2, 2003.)

25.36.030 Construction regulations.

A. All smoke houses, regardless of size, shall be constructed of non-combustible materials.

B. All buildings and structures used as smoke houses shall be located a safe distance from any other building, as determined by the Fire Marshal.

C. Buildings and structures used as smoke houses shall not be used for any other purpose. (1994 C., § 25.36.030; Ord. No. 65944, § 3, 2003.)

25.36.040 Compliance—Animals.

Every person who owns or operates a smoke house within a residential zoning district shall comply with the provisions of Ordinance 64116, Ordinance 48606

and all ordinances which may be enacted subsequent to such effective date regarding the slaughter of animals and the disposal of parts of animals within the City of St. Louis. (1994 C., § 25.36.040; Ord. No. 65944, § 4, 2003.)

25.36.050 Sale of food prohibited.

No person who owns or operates a smoke house within a residential zoning district shall sell or offer for sale any food product prepared in such smoke house. The provisions of this section shall not apply to any food service establishment or temporary food service establishment regulated by Section 11.42 of the Revised Code of the City of St. Louis. (1994 C., § 25.36.050; Ord. No. 65944, § 5, 2003.)

25.36.060 Compliance—Air pollution.

Every person who owns or operates a smoke house within a residential zoning district shall comply with the provisions of Ordinance 65645 and all ordinances which may be enacted subsequent to such effective date regarding the regulation and control of air pollution within the City of St. Louis. (1994 C., § 25.36.060; Ord. No. 65944, § 6, 2003.)

25.36.070 Penalty for violations.

Any person found to have violated the provisions of this chapter shall be subject to a fine of not less than one hundred dollars ($100.00) or to a term of imprisonment of not more than ninety (90) days or both a fine and a term of imprisonment. Each day that such violations continues shall constitute a separate violation of this chapter. (1994 C., § 25.36.070; Ord. No. 65944, § 7, 2003.)

Chapter 25.40

THEATRICAL BARGES

City Counselor Ops.: 8451

Sections:

25.40.010 Applicability of chapter requirements.

25.40.020 Hand railings required.

25.40.030 Exit door requirements—Approval of Building Commissioner.

25.40.040 Exits—Size and number—Designation.

25.40.050 Programs to show exits.

25.40.060 Seats—Distance between—Maximum number between aisles.

25.40.070 Proscenium—Fireproof curtain—Operation and construction.

25.40.080 Inspection of curtains by Building Commissioner.

25.40.090 Fireproof paint required—Curtains to be less inflammable.

25.40.100 Calcium limelights prohibited—Rearrangement of stage ordered by Building Commissioner.

25.40.110 Doors from stage to auditorium must be metal-clad.

25.40.120 Inspection—Right of entry—Interference prohibited.

25.40.130 Skylights required—Manner of construction—Substitutes.

25.40.140 Lighting requirements generally.

25.40.150 Electrical wiring and appliances—Inspection and approval.

25.40.160 Firefighting equipment generally.

25.40.170 License required—Building Commissioner's approval.

25.40.180 Inspection fees—Posting of certificate of inspection.

25.40.010 Applicability of chapter requirements.

Every boat, barge or vessel used for any theatrical or operatic purposes and having seating accommodations for one hundred or more persons, and which has seating accommodations for spectators above the first or main floor, shall comply with this chapter. (1948 C., Ch. 67, § 27; 1960 C., § 718.010; 1994 C., § 25.40.010.)

25.40.020 Hand railings required.

All stairways and gangways shall have strong hand railings on both sides. These railings shall be continuous across platforms and landings wherever possible. (1948 C., Ch. 67, § 28; 1960 C., § 718.020; 1994 C., § 25.40.020.)

25.40.030 Exit door requirements—Approval of Building Commissioner.

All doors shall open outwardly and be kept unfastened and unobstructed during every performance. The exit doors shall be provided with self-releasing latches so arranged as to readily release the doors by pressure against them from the inside. These doors must be approved by the Building Commissioner. (1948 C., Ch. 67, § 29; 1960 C., § 718.030; 1994 C., § 25.40.030.)

25.40.040 Exits—Size and number—Designation.

There shall be at least two exits not less than five feet in width, one located at each end of the auditorium, leading directly to gangplanks connected with the dock, pier or the shore. All exits shall be plainly indicated by letters not less than four inches in height, placed over every doorway or passageway leading to the outside. Each exit shall at all times be kept free from curtains, portieres and similar obstructions, and shall be marked plainly with a red light. Every such boat, barge or vessel shall have an exit from the stage to a passageway not less than four feet wide. This passageway shall lead to an exit from the boat, barge or vessel. There shall be a clear, unobstructed passageway leading from the stage and all dressing rooms to such exit. (1948 C., Ch. 67, § 30; 1960 C., § 718.040; 1994 C., § 25.40.040.)

25.40.050 Programs to show exits.

All printed programs shall show a plan or diagram of each floor and balcony of a boat, barge or vessel, indicating the location of all exits and passageways leading to the outside. (1948 C., Ch. 67, § 31; 1960 C., § 718.050; 1994 C., § 25.40.050.)

25.40.060 Seats—Distance between—Maximum number between aisles.

All seats, except those contained in boxes, shall be at least thirty inches apart, measured from back to back, and shall be firmly secured to the floor. No seat shall have more than nine seats between it and an aisle, and no stool or seat shall be placed in any aisle. (1948 C., Ch. 67, § 32; 1960 C., § 718.060; 1994 C., § 25.40.060.)

25.40.070 Proscenium—Fireproof curtain—Operation and construction.

The proscenium opening of every such boat, barge or vessel shall be provided with a curtain of asbestos or

similar fireproof material. This curtain shall cover the entire proscenium opening. It shall be operated with rings and snaps sliding on wire cables or metal supports, and constructed in such a way that it can be lowered from the fly floors and the stage. The fireproof curtain shall be lowered at the close of every performance and shall be operated from the stage by proper devices for that purpose. (1948 C., Ch. 67, § 33(part); 1960 C., § 718.070; 1994 C., § 25.40.070.)

25.40.080 Inspection of curtains by Building Commissioner.

It shall be the duty of the Building Commissioner to inspect and test the construction and operation of such fireproof curtains at such intervals as shall, in his opinion, insure their maintenance in a good and sufficient condition for the safety of the audience. (1948 C., Ch. 67, § 33(part); 1960 C., § 718.080; 1994 C., § 25.40.080.)

25.40.090 Fireproof paint required—Curtains to be less inflammable.

A. All woodwork on the stage, fly-galleries, and rigging-lofts shall be painted with fireproof paint or treated with an approved fire-resisting material so as to be effectively rendered safe against fire. The curtains about the proscenium boxes, and all draperies, portieres and curtains within the auditorium or any aisles or corridors thereof shall be chemically treated to make them less inflammable. The frame or woodwork surrounding the canvas scenery used by the boat, barge or vessel shall be painted with fireproof paint and the reverse or back side of such canvas scenery shall be treated with an approved fire-resisting material.

B. The use of scenery painted with oil is prohibited. (1948 C., Ch. 67, § 34; 1960 C., § 718.090; 1994 C., § 25.40.090.)

25.40.100 Calcium limelights prohibited—Rearrangement of stage ordered by Building Commissioner.

The use of calcium limelights is prohibited, except on the stage floor. Whenever the Building Commissioner shall be satisfied that in any theatrical or operatic performance an extra hazard of fire will exist by reason of the employment of large quantities of scenery, nets, ropes, lights and other inflammable material, he shall order such scenery and lights arranged in such a manner as will reduce the hazard to a minimum degree. (1948 C., Ch. 67, § 35; 1960 C., §§ 718.100 and 718.110; 1994 C., § 25.40.100.)

25.40.110 Doors from stage to auditorium must be metal-clad.

All doors leading from the stage to the auditorium shall be metal-clad doors. (1948 C., Ch. 67, § 36; 1960 C., § 718.120; 1994 C., § 25.40.110.)

25.40.120 Inspection—Right of entry—Interference prohibited.

The Building Commissioner and his assistants shall have the right to enter any such boat, barge or vessel or any parts thereof at any reasonable time, especially when occupied by the public, in order to determine the existing conditions and discharge their respective duties. It shall be unlawful for any person to refuse admission to such officers or to obstruct them in any manner in the performance of their duties. (1948 C., Ch. 67, § 37; 1960 C., § 718.130; 1994 C., § 25.40.120.)

25.40.130 Skylights required—Manner of construction—Substitutes.

A. Over the stage there shall be metal skylights of a combined area equal to one-tenth of the area of the stage, and glazed with glass not exceeding one-eighth of an inch in thickness. Each light thereof shall measure not less than three hundred square inches. The whole of each such skylight shall be so constructed as to open instantly upon the cutting or burning of a cord fastened to the floor at the rear side of the stage or the melting of a fusible link, which shall be arranged to hold such skylight closed, or some other equally simple approved device for their opening automatically in case of fire on the stage. As an extra precaution, they shall be so constructed that they may be instantly thrown open by means of a strong wire cable reaching them from the stage floor or by any equally effective means for their being opened manually which may be approved by the Building Commissioner. A strong wire netting constructed of wire not less than number ten gauge, and of a mesh not larger than one inch shall be securely suspended below the glass of all skylights.

B. In case it is impracticable to construct skylights as herein described, it shall be permissible to provide, in lieu thereof, ventilating openings in the walls above the stage, at such locations and of such size and construction as shall be approved by the Building Commissioner. Such ventilating openings shall be arranged to open in the same manner as skylights above the stage. (1948 C., Ch. 67, § 38; 1960 C., § 718.140; 1994 C., § 25.40.130.)

25.40.140 Lighting requirements generally.

Every part of such boat, barge or vessel used for theatrical or operatic purposes, and all outlets leading to the outside thereof, including all passageways, shall be lighted during each performance and until the entire audience has left the premises. All lights in the halls, corridors, lobby or any part of such boat, barge or vessel used by the audience, except the auditorium, shall be controlled by a separate shutoff, located in the front portion of the boat, barge or vessel and controlled from that particular place only. All suspended or bracket lights surrounded by glass globes or shades in any part of such boat, barge or vessel devoted to the public shall be provided with proper wire netting underneath. No light shall be inserted in the wall, woodwork, ceilings, or in any part of such boat, barge or vessel unless protected by fireproof materials. All lights in passages and corridors shall be protected with proper wire network. All border, ceiling, or other lights on or over the stage shall be incandescent electric. All lights on the stage side of the proscenium wall in dressing rooms, store rooms, and other places, other than incandescent electric lights, shall have strong wire metal guards or screens not less than ten inches in diameter, so constructed that any material in contact therewith shall be out of reach of such lights, and shall be rigidly attached to the fixtures in all cases. (1948 C., Ch. 67, § 39; 1960 C., § 718.150; 1994 C., § 25.40.140.)

25.40.150 Electrical wiring and appliances—Inspection and approval.

All electrical wiring and appliances used in connection with the lighting of such boat, barge or vessel shall be approved by an inspector of the section of electrical inspection in the Department of Public Utilities. (1948 C., Ch. 67, § 40; 1960 C., § 718.160; 1994 C., § 25.40.150.)

25.40.160 Firefighting equipment generally.

Two barrels filled with water shall be kept in position for immediate use on the stage and each gallery. Each barrel shall be provided with two buckets. These barrels and buckets shall be painted red. There shall also be provided such portable fire extinguishing apparatus as, in the judgment of the Building Commissioner, may be necessary for the protection of the audience. On each tier or floor of the stage there shall be kept at least two axes, two 20-foot hooks, two 15-foot hooks and two 10-foot hooks. (1948 C., Ch. 67, § 41; 1960 C., § 718.170; 1994 C., § 25.40.160.)

25.40.170 License required—Building Commissioner's approval.

Every such boat, barge or vessel shall pay to the License Collector the license fees required by the current license ordinance of the City. No boat, barge or vessel shall be used for theatrical or operatic purposes until such boat, barge or vessel shall have been approved by the Building Commissioner, in writing, as required by this chapter. The License Collector shall not issue a license for any theatrical or operatic performance to be conducted in such boat, barge or vessel until the certificate of approval has been given, in writing, by the Building Commissioner. (1948 C., Ch. 67, § 42; 1960 C., § 718.180; 1994 C., § 25.40.170.)

25.40.180 Inspection fees—Posting of certificate of inspection.

A. The fee to be paid for each inspection shall be five dollars if the seating capacity of the boat, barge or vessel does not exceed one thousand. For every additional one thousand seats or fractional part thereof, an additional sum of five dollars shall be paid.

B. It shall be the duty of any manager, owner, licensee or keeper of any such boat, barge or vessel to post the certificate of inspection of the Building Commissioner, or a true copy thereof, in the auditorium of such boat, barge or vessel. (1948 C., Ch. 67, § 43; 1960 C., §§ 718.190 and 718.200; 1994 C., § 25.40.180.)

Chapter 25.44

TRAILER PARKS

Sections:

25.44.010 Definitions.
25.44.020 License—Required—Fee.
25.44.030 Location of park.
25.44.040 Park plan requirements.
25.44.050 Sanitation facilities.
25.44.060 Laundry facilities.
25.44.070 Sewage disposal.
25.44.080 Refuse disposal.
25.44.090 Fire protection.
25.44.100 Register of occupants.
25.44.110 Other uses prohibited.
25.44.120 Revocation of license.
25.44.130 Violation—Penalty.

25.44.010 Definitions.

For the purpose of this chapter, certain words and phrases are defined as follows:

A. "Trailer coach" is any portable structure or vehicle mounted upon wheels and used for living or sleeping purposes.

B. "Trailer coach park" is a plot of ground where five or more trailer coaches may be located, regardless of whether or not a charge is made for such accommodation.

C. "Trailer coach space" is a plot of ground within a trailer coach park designed for the accommodation of one trailer coach. (1960 C., § 650.010; 1994 C., § 25.44.010; Ord. No. 45479, § 1, 1950.)

25.44.020 License—Required—Fee.

It shall be unlawful for any person to maintain or operate within the limits of the City any trailer coach park unless such person shall first obtain a license therefor. A written application for such license, signed by the applicant, shall be made to the License Collector, stating the name and address of the applicant, the location of the trailer coach park, and that the location thereof is zoned as the "K" Unrestricted District, a complete plan showing the maximum number of trailers the park will accommodate, and plans of all proposed or existing buildings and improvements. Before such license shall be issued or renewed, the premises shall be inspected by the Health Commissioner and the Building Commissioner to determine whether the provisions of this chapter are complied with, and the Chief of Police shall cause an investigation to be made to determine the character and fitness of the applicant. The annual license fee for each trailer coach park shall be twenty-five dollars for five or less spaces and an additional five dollars for each space in excess of five. The license certificate shall be conspicuously posted on the premises at all times. (1960 C., § 650.020; 1994 C., § 25.44.020; Ord. No. 45479, § 2, 1950.)

25.44.030 Location of park.

No trailer coach park shall be located in a district zoned other than the "K" Unrestricted District. Each boundary of such park shall be at least one thousand feet from any area other than the "K" Unrestricted District. (1960 C., § 650.030; 1994 C., § 25.44.030; Ord. No. 45479, § 3, 1950.)

25.44.040 Park plan requirements.

The trailer coach park shall conform to the following requirements:

A. The park shall be located on a well-drained site, properly graded to insure rapid drainage and freedom from stagnant pools of water.

B. Trailer coach spaces shall be provided consisting of a minimum of 1,000 square feet for each space which shall be at least 25 feet wide and clearly defined. Trailer coaches shall be so harbored on each space that there shall be at least a 15-foot clearance between trailer coaches. No trailer coach shall be located closer than 10 feet from any property line bounding the park nor within 5 feet of the boundary of the trailer coach space.

C. All trailer coach spaces shall abut upon a driveway of not less than 20 feet in width which shall have unobstructed access to a public street, alley or highway. All driveways shall be hard-surfaced, well-marked in the daytime and lighted at night with lamps of not less than 25 watts at intervals of 100 feet located approximately 15 feet from the ground.

D. Walkways not less than two feet wide shall be provided from the trailer coach spaces to the service buildings. The walkways shall be hard-surfaced, well-marked in the daytime and lighted at night with lamps of not less than 25 watts at intervals of 100 feet located approximately 15 feet from the ground.

E. Each park shall provide service buildings to house toilet facilities, bathing facilities, laundry facilities and other sanitary facilities as hereinafter more particularly prescribed.

F. An electrical outlet supplying at least 110 volts shall be provided for each trailer coach space.

G. An adequate supply of pure water for drinking and domestic purposes shall be supplied to meet the requirements of the park. The water supply shall be obtained from faucets only. No common drinking cups shall be permitted. Cold water supply faucets shall be located on each trailer coach space. An adequate supply of hot water shall be provided at all times in the service building for bathing, washing and laundry facilities. (1960 C., § 650.040; 1994 C., § 25.44.040; Ord. No. 45479, § 4, 1950.)

25.44.050 Sanitation facilities.

Each park shall be provided with toilets, baths or showers, slop sinks and other sanitation facilities which shall conform to the following requirements:

A. Toilet facilities for men and women shall be either in separate buildings at least 20 feet apart or shall be separated, if in the same building, by a soundproof wall.

B. Toilet facilities for women shall consist of not less than one flush toilet for every 10 trailer coach spaces, one shower or bath tub for every 10 trailer coach spaces and one lavatory for every 20 trailer coach spaces. Each toilet, shower and bath tub shall be in a private compartment.

C. Toilet facilities for men shall consist of not less than one flush toilet for every 15 trailer coach spaces, one shower or bath tub for every 10 trailer coach spaces, one lavatory for every 10 trailer coach spaces and one urinal for every 15 trailer coach spaces. Each toilet and bath tub shall be in a private compartment.

D. Service buildings housing the toilet facilities shall be permanent structures complying with all applicable ordinances and statutes regulating buildings, electrical installations and plumbing and sanitation systems, and shall be located not closer than 10 feet nor farther than 250 feet from any trailer coach space.

E. Each service building shall contain at least one slop sink for each sex located in a separate compartment.

F. The service buildings shall be well-lighted at all times of the day or night, shall be well-ventilated with screened openings, shall be constructed of such moisture-proof material, including painted woodwork, as shall permit repeated cleaning and washing, and shall be maintained at a temperature of at least 68 degrees Fahrenheit during the period from October 1st to May 1st. The floors of the service building shall be of water impervious material and shall slope to a floor drain connected with the sewage system.

G. Adequate measures shall be taken to control roaches, flies, and mosquitoes in service buildings and to prevent breeding of such insects in the park areas. No conditions conducive to rat infestation shall be permitted and all necessary measures, including adequate rat-stoppage of service building, shall be taken to eliminate rat infestation.

H. All service buildings and the grounds of the park shall be maintained in a clean and sanitary condition and kept free of any condition that will menace the health of any occupant or the public or constitute a nuisance. (1960 C., § 650.050; 1994 C., § 25.44.050; Ord. No. 45479, § 5, 1950.)

25.44.060 Laundry facilities.

The laundry facilities shall be provided in the ratio of one double laundrytub and ironing board for every 20 trailer coach spaces. An electrical outlet supplying current sufficient to operate an iron shall be located conveniently near the ironing board. Drying spaces shall be provided sufficient to accommodate the laundry of the trailer coach occupants. The service building housing the laundry facilities shall be a permanent structure complying with all applicable ordinances and statutes regulating buildings, electrical installations and plumbing and sanitation systems. (1960 C., § 650.060; 1994 C., § 25.44.060; Ord. No. 45479, § 6, 1950.)

25.44.070 Sewage disposal.

Waste from showers, bathtubs, toilets, slop sinks and laundries shall be discharged into a public sewer system in compliance with applicable ordinances in such manner as will present no health hazard. All kitchen sinks, wash-basins, bath or shower tubs in any trailer coach harbored in any park shall empty into a sanitary sewer located on the trailer coach space. (1960 C., § 650.070; 1994 C., § 25.44.070; Ord. No. 45479, § 7, 1950.)

25.44.080 Refuse disposal.

Tightly covered metal garbage cans and rubbish cans shall be provided in quantities adequate to permit disposal of all garbage and rubbish. Garbage and rubbish cans shall be located not farther than 200 feet from any trailer coach space. The cans shall be kept in sanitary condition at all times. Garbage and rubbish shall be collected and disposed of as frequently as may be necessary to ensure that the containers shall not overflow. (1960 C., § 650.080; 1994 C., § 25.44.080; Ord. No. 45479, § 8, 1950.)

25.44.090 Fire protection.

Every park shall be equipped at all times with at least one approved fire extinguisher in good working order for every 10 trailer coach spaces. In addition, the licensee shall require each trailer to be equipped with an approved fire extinguisher in good working order. No open fires shall be permitted at any place which would endanger life or property. No kerosene or oil lamps shall be used in trailers. All heating and cooking apparatus shall be connected to the open air by means

of flues, except where the heating or cooking element is electricity. No trailer shall be permitted in such park unless provided with at least two means of exit. (1960 C., § 650.090; 1994 C., § 25.44.090; Ord. No. 45479, § 9, 1950.)

25.44.100 Register of occupants.

A. It shall be the duty of the licensee to keep a register containing a record of all trailer coach owners and occupants located within the park. The register shall contain the following information:

1. Name and address of each occupant;

2. The make, model and year of all automobiles and trailer coaches;

3. License number and owner of each trailer coach and automobile by which it is towed;

4. The state issuing such licenses; and

5. The dates of arrival and departure of each trailer coach.

B. The park operator shall keep the register available for inspection, at all times, by law enforcement officers, public health officials and other officials whose duties necessitate acquisition of the information contained in the register. The register records shall not be destroyed for a period of three years following the date of registration. (1960 C., § 650.100; 1994 C., § 25.44.100; Ord. No. 45479, § 10, 1950.)

25.44.110 Other uses prohibited.

It shall be unlawful for any person to maintain any trailer coach for dwelling purposes upon any plot of ground within the City except in a duly licensed trailer coach park. It shall be unlawful to remove the wheels or otherwise to fix said trailer coach permanently to the ground so as to prevent ready removal, unless a permit therefor is obtained from the Building Commissioner. Any such alteration shall be construed as converting the trailer into a single dwelling residence and shall make it subject to the requirements of the Sanitary, Zoning and Building Code Ordinances. (1960 C., § 650.110; 1994 C., § 25.44.110; Ord. No. 45479, § 11, 1950.)

25.44.120 Revocation of license.

Whenever any department of the City required to investigate or inspect trailer coach parks shall find a violation of the provisions of this chapter, the department shall notify the licensee of the violation. If the violation is not corrected subject to the approval of the department complaining, within a reasonable time after notification, the license may be revoked by the Board of Public Service, after a hearing thereon. (1960 C., § 650.120; 1994 C., § 25.44.120; Ord. No. 45479, § 12, 1950.)

25.44.130 Violation—Penalty.

Any person who violates the provisions of this chapter shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined the sum of not less than five dollars nor more than two hundred dollars for each offense. Each day that a violation is permitted to exist shall constitute a separate offense. (1960 C., § 650.130; 1994 C., § 25.44.130; Ord. No. 45479, § 14, 1950.)

Chapter 25.48

CERTIFICATES OF USE AND OCCUPANCY

Sections:

25.48.010	**Reserved.**
25.48.020	**Approval by Community Development Commission.**
25.48.030	**No permit without Community Development Commission approval.**
25.48.040	**Standards for approval.**
25.48.050	**Exceptions.**
25.48.060	**Procedure for changing standards.**
25.48.070	**Planning law.**

25.48.010 Reserved.

Editor's Note:

Ord. No. 69948, § 1, adopted Feb. 18, 2015, repealed § 25.48.010 which pertained to certificates of use and occupancy required and derived from Ord. No. 56167, § 1, adopted in 1972.

25.48.020 Approval by Community Development Commission.

No building permit or certificate of use and occupancy shall be issued for residential housing construction or use, which construction or use is in any way whatsoever to be subsidized with governmental funds, unless the application for the same is first approved by the Community Development Commission. For the purpose of this chapter, a residential housing construction or use will not be considered as being subsidized with governmental funds if such construction or use is constructed, changed, altered, enlarged or remodeled through a loan guaranteed or insured by any government and if such housing construction or use is not

subsidized with governmental funds in any other way. (1994 C., § 25.48.020; Ord. No. 56167, § 2, 1972.)

25.48.030 No permit without Community Development Commission approval.

When an application for a building permit to construct new subsidized housing units (as described hereinabove) and every application for a certificate of use and occupancy for units in subsidized existing buildings (as described hereinabove) is received by the Building Commissioner's Office, it shall be forwarded promptly to the City Plan Commission for approval or disapproval. No such permit may be issued without prior City Plan Commission approval. (1994 C., § 25.48.030; Ord. No. 56167, § 3, 1972.)

25.48.040 Standards for approval.

Upon receipt of any such application, the City Plan Commission shall review same to determine whether the proposed new building or occupancy or use conforms with the standards set forth in "A Housing Program for the City of St. Louis 1970-1980" (hereinafter referred to as "housing program") which housing program is recognized herein and was approved by the City Plan Commission on the 12th day of May, 1971. If conformity with said standards is found, the application shall be approved, and if not, it shall be disapproved. The City Plan Commission shall notify the Building Commissioner in writing of its approval or disapproval. If the City Plan Commission notifies the Building Commissioner or the applicant of its approval or if the City Plan Commission fails to notify the Building Commissioner of either its approval or disapproval within forty-five days after receipt of said application, the application shall be deemed automatically approved. The Building Commissioner shall then be authorized to issue the necessary permit provided that the application complies in all other respects with the requirements of all applicable laws and ordinances. For the purposes of this chapter, any reference in said housing program to or use of the words "low-income residential developments" or "low-income dwelling units" or "low-income public housing units" or "residential developments for low-income families" or "residential developments for low-income elderly" or "low-income housing" shall be interpreted to mean any dwelling unit or group of dwelling units which is constructed or rehabilitated by, or for sale or for lease to St. Louis housing authority; or is an existing building to be sold or leased to said authority; and any dwelling unit which is to be constructed or rehabilitated under a mortgage program which now involves rent supplement payments from any governmental agency or under a mortgage program which contains an option, exercisable in the future, for use of rent supplement payments from any governmental agency. (1994 C., § 25.48.040; Ord. No. 56167, § 4, 1972.)

25.48.050 Exceptions.

A. Within thirty days after disapproval of any such application as described in Section 25.48.040, an applicant can apply to the City Plan Commission for an exception from its disapproval of such application. The City Plan Commission may recommend to the Board of Aldermen that an exception be granted for such application if it finds the following:

1. That although the application deviates from the aforementioned standards of the housing program, the deviation is of an insubstantial and insignificant nature; and

2. That the application conforms with other standards, criteria and objectives of said housing program; and

3. That special community facilities, including schools, public transportation, medical, recreational and employment opportunities are available in sufficient quantity and availability in the nearby vicinity of the proposed construction or use to justify the exception.

B. The City Plan Commission shall communicate its favorable recommendation of any application for an exception to the Board of Aldermen with its written factual findings supporting such recommendation. If the Board of Aldermen approves such recommendation by ordinance, the exception shall be granted. If said exception is so enacted into ordinance by the Board of Aldermen, the Building Commissioner shall issue the necessary permits requested by the said application provided the application complies in all other respects with the requirements of all applicable laws and ordinances. (1994 C., § 25.48.050; Ord. No. 56167, § 5, 1972.)

25.48.060 Procedure for changing standards.

The City Plan Commission may at any time recommend changes in the standards of the said housing program to the Board of Aldermen for ordinance enactment. The City Plan Commission shall be required to review said housing program on an annual basis beginning not later than one year from the effective

date of this chapter (March 29, 1973) and recommend to the Board of Aldermen any changes in said standards that the Commission deems necessary. (1994 C., § 25.48.060; Ord. No. 56167, § 6, 1972.)

25.48.070 Planning law.

This chapter is a planning law within the meaning of RSMo 99.130 (1969). (1994 C., § 25.48.070; Ord. No. 56167, § 7, 1972.)

Chapter 25.52

SMOKE DETECTORS

Sections:

25.52.010 Definitions.
25.52.020 Installation requirements—After January 1, 1985.
25.52.030 Installation requirements—One-year compliance period.
25.52.040 Location requirements.
25.52.050 Type of detector.
25.52.060 Owner responsibility to install, test and maintain.
25.52.070 Enforcement and inspection.
25.52.080 Battery removal prohibited.
25.52.090 Penalty for violation.

25.52.010 Definitions.

For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present time include the future, words in singular number include the plural number. The word "shall" is mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

A. The term "dwelling unit" means a structure, building, area, room or combination of rooms occupied by persons for sleeping or living.

B. The term "owner" means any person, firm, partnership, corporation who alone or jointly or severally with other persons, firms, partnerships has legal title to any premises. The term "owner" includes any person, partnership or corporation, who has charge, care or control over any premises as (1) an agent, officer, fiduciary, or employee of the owner; (2) the conservator, or legal guardian of an owner who is non compos mentis, a minor, or otherwise under a disability; (3) a trustee elected or appointed, or a person required by law to execute a trust, other than a trustee under a deed of trust to serve the payment of money; or (4) an executor, administrator, personal representative receiver, fiduciary, officer appointed by any court, or other similar representative of the owner or his estate. The term "owner" does not include a lessee, sublessee or other person who merely has the right to occupy or possess a premises.

C. The term "sleeping area" means a bedroom or room intended for sleeping, or a combination of bedrooms or rooms intended for sleeping within a dwelling unit, which are located on the same floor and are not separated by another habitable room, such as a living room, dining room, or kitchen but not a bathroom, hallway or closet. A dwelling unit may have more than one sleeping area.

D. The term "smoke detector" means a device which detects visible or invisible particles of combustion and shall be either the ionization chamber or the photoelectric type. (1994 C., § 25.52.010; Ord. No. 59376, § 1, 1985.)

25.52.020 Installation requirements—After January 1, 1985.

The owner of each dwelling unit which is constructed or rehabilitated after January 1, 1985 shall install smoke detectors and/or fire suppression systems prior to the occupancy of said dwelling unit in compliance with the existing Building Code and Fire Codes of the City in effect at the date of occupancy. If there is no ordinance in effect requiring smoke detectors or fire suppression systems to be installed at the time of occupancy, then the owner shall install smoke detectors as required by this chapter. (1994 C., § 25.52.020; Ord. No. 59376, § 2, 1985.)

25.52.030 Installation requirements—One-year compliance period.

The owner of each existing dwelling or newly constructed or rehabilitated unit that is not at the effective date of this chapter required to be protected by a smoke detector or fire suppression system shall install smoke detectors as required by this chapter within one year of the effective date of this chapter. (1994 C., § 25.52.030; Ord. No. 59376, § 3, 1985.)

Editor's Note:

Ordinance 59376 was approved February 19, 1985.

25.52.040 Location requirements.

The owner of each existing dwelling or newly constructed or rehabilitated unit shall install at least one (1)

smoke detector to protect each sleeping area. In an efficiency, the owner shall install the smoke detector in the room used for sleeping. In all other dwelling units, the owner shall install the smoke detectors outside the bedrooms, but in the immediate vicinity of the sleeping area. An owner subject to this chapter shall install each smoke detector on the ceiling at a minimum of four inches from the side wall to the near edge of the detector or on a wall located four to twelve inches from the ceiling to the top of the detector and within fifteen feet of all rooms used for sleeping purposes, with not less than one detector per level containing a habitable room and in the basement or cellar. The smoke detector shall not be installed in dead air space, such as where the ceiling meets the wall. Where one or more sleeping areas are located on a level above the cooking and living area, the smoke detector for such sleeping area(s) shall be placed at the top of the stairway. An owner shall also install not less than one smoke detector on the uppermost ceiling, not less than four inches from any wall, or on a wall, locate four to twelve inches from the uppermost ceiling of all interior stairwells. For good cause shown, the Director of Public Safety or his designated department representatives have the authority to modify the location requirement of this chapter. (1994 C., § 25.52.040; Ord. No. 59376, § 4, 1985.)

25.52.050 Type of detector.

The owner shall install a smoke detector which is capable of sensing visible or invisible particles of combustion and emitting an audible signal and may be wired directly to the building power supply, or may be powered by self-monitored battery. The smoke detector shall comply with all the specifications of the Underwriters Laboratories, Inc. Standard UL217 (Standard for Safety-Single and Multiple Station Smoke Detectors) 2nd Edition October 4, 1978 as revised May 19, 1983 or any recognized standard testing laboratory that certifies the detector meets the requirement of National Fire Protection Association (NFPA) Standards 72E and 74. Smoke detectors shall bear the label of a nationally recognized standards testing laboratory that indicates that the smoke detectors have been tested and listed under the requirement of UL217 2nd Edition or NFPA 72E and 74. (1994 C., § 25.52.050; Ord. No. 59376, § 5, 1985.)

25.52.060 Owner responsibility to install, test and maintain.

It shall be the responsibility of the owner to supply and install all required detectors. The owner shall be responsible for testing and maintaining detectors in common stairwells. It shall be the responsibility of the tenant to provide and maintain functional batteries for each detector, to test and maintain detectors within dwelling units, and to notify the owner or authorized agent in writing of any deficiencies. The owner shall be responsible for providing each tenant with written information regarding detector testing and maintenance. (1994 C., § 25.52.060; Ord. No. 59376, § 6, 1985.)

25.52.070 Enforcement and inspection.

The Director of Public Safety or his designated department representatives shall have jurisdiction to inspect dwelling units for the installation of any smoke detector required to be installed under this or any other ordinance. Said inspections may be held between the hours of 9:00 a.m. and 5:00 p.m., Monday through Friday. (1994 C., § 25.52.070; Ord. No. 59376, § 7, 1985.)

25.52.080 Battery removal prohibited.

It shall be unlawful for any person to remove batteries or in any way make smoke detectors inoperable. (1994 C., § 25.52.080; Ord. No. 59376, § 8, 1985.)

25.52.090 Penalty for violation.

Any owner or other person who is convicted of violating any provision of this chapter shall be punished by a fine of not less than twenty-five dollars ($25.00) or more than five hundred dollars ($500.00) or by imprisonment for not more than ninety (90) days or by both such fine and imprisonment. (1994 C., § 25.52.090; Ord. No. 59376, § 9, 1985.)

Chapter 25.56

HOUSING CONSERVATION DISTRICTS

Editor's Note:

Ord. No. 71835, § 1, adopted April 16, 2024, amended the Code by repealing former Ch. 25.56, §§ 25.56.010—25.56.150, and adding a new Ch. 25.56 to read as herein set out. Former Ch. 25.56 pertained to similar subject matter, and derived from Ord. No. 67194 of 2008; Ord. No. 67993, adopted June 24, 2008; Ord. No. 68714, adopted July 13, 2010; Ord. No. 68724, adopted July 22, 2010; Ord. No. 68794, adopted Nov. 18, 2010; Ord. No. 69117, adopted March 20, 2012; Ord. No. 69202, adopted July 24, 2012; and Ord. No. 70456, adopted February 8, 2017.

Sections:

25.56.010 City Housing Conservation Program.

25.56.020 Definitions.

25.56.030 Code Official to enforce chapter.
25.56.040 Certificate of inspection requirements—Exception.
25.56.050 Certificate of inspection—Issuance.
25.56.060 Certificate of inspection—Issuance—Exceptions.
25.56.070 Certificate of inspection—Fees.
25.56.080 Reinspection of premises for which valid certificate of inspection exists.
25.56.090 Condemnation for occupancy.
25.56.100 Change of utility service—Notification.
25.56.110 Registration of rental dwelling units required.
25.56.120 Change in registration information.
25.56.130 Reporting by Code Official.
25.56.140 Building Division Information Technology Fund—Established.
25.56.150 Administration—Appeals.
25.56.160 False statements prohibited—Occupancy load.
25.56.170 Penalties for violation.
25.56.180 Interiors of buildings.

25.56.010 City Housing Conservation Program.

All areas within the legal boundaries of the City of St. Louis are hereby placed under the City Housing Conservation Program to be administered and regulated by the provisions and requirements herein.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.020 Definitions.

A. "Code official" as used in this chapter means the Building Commissioner or a duly authorized representative.

B. "Condemnation for occupancy" means an order issued by the Code Official, prohibiting any person from occupying the dwelling unit specified in such order until it has been revoked, and further preventing anyone from being present on such premises except to clean up and/or make repairs to the premises.

C. "Dwelling unit" means a single-family home or any single unit in a multi-family dwelling that provides complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation.

D. "Owner" means any person, agent, operator, firm, corporation, or any other legal entity having a legal or equitable interest in a parcel of real property; recorded in the official records of the City of St. Louis as holding title to a parcel of real property; or otherwise having control of real property, including as a landlord, collector of rent, or a guardian of an estate for any such person, executor, personal representative, administrator of the estate of such person, or bankruptcy trustee.

E. "Rental dwelling unit" as used in this chapter refers to a dwelling unit that is being held out or offered for rent or is rented and/or occupied by any person who is not the owner of the premises. A dwelling unit occupied by a direct family member of the owner of the premises shall be considered as occupied by the owner. A "direct family member" of the owner shall be considered to be a child, grandchild, parent, sibling, parent-in-law, or grandparent. Additionally, two-family buildings or duplexes in which one of the units is owner-occupied and the other unit is held out for rent shall be considered owner-occupied. A single-family home or duplex shall not be considered a rental dwelling unit if they are owner-occupied.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.030 Code Official to enforce chapter.

The code official shall implement the requirements of this chapter.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.040 Certificate of inspection requirements—Exception.

A. It shall be unlawful for any person, firm, partnership, corporation, or any other legal entity to occupy or permit the occupancy for any purpose or collect the rent of any occupied dwelling unit when a complete change of occupancy has occurred without first securing a certificate of inspection for said dwelling unit.

B. It shall be unlawful for any person, partnership, firm, corporation, or other legal entity to take possession as a result of conveyance as it is reflected in the Office of the Recorder of Deeds, of an occupied residential unit(s) without first securing a certificate of inspection for said unit(s).

C. Upon determining that a dwelling unit has undergone a complete change of occupancy or a sale of

the property as reflected in the Recorder of Deeds' Office without first obtaining a certificate of inspection, the code official shall serve written notice on the owner of such dwelling unit, that a certificate of inspection must be obtained within thirty (30) calendar days of notification, or the unit will be condemned for occupancy and must be vacated. Written notice may be sent by (i) personal service; (ii) postage prepaid United States certified mail, return receipt requested, and regular first class mail; (iii) FedEx, UPS, or similar carrier; or (iv) posting the notice in a conspicuous location on the property where the violation exists, unless there has been personal service.

D. It is the responsibility of the owner to secure a certificate of inspection. It shall be the responsibility of the owner, owner's agent, and/or the occupant to provide access to all applicable areas subject to inspections as provided in this chapter.

E. It shall be unlawful for the owner or owner's agent to require a prospective occupant to apply or pay for any fee contained herein for a certificate of inspection.

F. If there is a change in occupancy or ownership of a dwelling unit(s) within twelve (12) months of the date of issuance of a certificate of inspection for that unit(s), a new certificate of inspection shall not be required.

(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.050 Certificate of inspection—Issuance.

A. If the unit is available for inspection by the City, the City shall inspect the unit within seven (7) working days from the date of application for Certificate of Inspection unless the Owner approves a longer time. Failure of the City to inspect within said seven (7) days does not waive the requirements of a Certificate of Inspection.

B. The Certificate of Inspection will be issued for the dwelling unit and premises that comply with the exterior provisions of the International Property Maintenance Code, the Zoning Ordinance of the City of St. Louis, and the requirements of all Building Code relating to the Interiors of Buildings.

C. The Certificate of Inspection may be issued for the dwelling unit(s) and premise(s) that comply with the Zoning Code of the City of St. Louis and the requirements of all Building Code relating to the Interiors of Buildings and are in substantial but not complete compliance with the exterior provisions of the International Property Maintenance Code as determined by the Code Official but said building must meet total compliance within thirty (30) calendar days after the date of issuance. When total compliance is not practical or feasible within the specified time, extensions to the aforementioned compliance period may be granted at the discretion of the Code Official.

D. No Certificate of Inspection can be issued when the dwelling unit(s), building, or the premise(s) is in such condition as to warrant condemnation or when conditions are found that may imminently and adversely affect the health, safety, or welfare of the actual or proposed occupants.

E. When long-term rehabilitation work is in progress with required building permits being issued, a portion of that building may be occupied if that portion meets the requirements of all Building Code relating to the Interiors of Buildings and the exterior portion of the building is in compliance with the International Property Maintenance Code. That portion of the building that meets the requirements will be inspected and a Certificate of Inspection with an occupancy load will be issued for that area only. Additional areas will be required to be inspected after rehabilitation work is completed and before those areas become occupied. A new application must be filed for these additional areas.

(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.060 Certificate of inspection—Issuance—Exceptions.

A. The provisions of this chapter pertaining to the issuance of a Certificate of Inspection shall not apply to lawful occupancies existing at the time of the effective date of this chapter.

B. The provisions of this chapter shall not apply to a change of ownership of any occupied residential and/or nonresidential building which the buyer either thirty (30) calendar days prior to purchase or within seven (7) calendar days after purchase delivers a notarized statement to the Code Official that the buyer will cause said building to be demolished within six (6) months after purchase. Failure to provide the notarized statement to the Code Official within this time period will require the Owner to comply with the provisions of this chapter. The provisions of this chapter shall not

apply to a change of ownership of one- or two-family dwellings as a result of inheritance or a transfer of title to a first-degree relative.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.070 Certificate of inspection—Fees.

A. Fees for a certificate of inspection prior to occupancy when the application for inspection is:

1. General inspection of the exterior of building and all common areas and premises plus one (1) dwelling unit is one hundred twenty dollars ($120.00.) Each additional dwelling unit included in the general inspection, if the inspection is performed within the same building and on a common date, is sixty-five dollars ($65.00) per additional dwelling unit.

B. The fee for a certificate of inspection per unit which is unlawfully occupied shall be two hundred dollars ($200.00) per unit.

C. Major rehabilitation of dwelling units pursuant to interior floor plans for each level, and site plans approved by the Building Division, as well as newly constructed units having been certified as completed in accordance with the codes and ordinances of the City of St. Louis will be issued original certificates of inspection as described herein at no charge after construction completion and Building Code compliance certification.

D. Six (6) percent of fee revenue collected will be allocated to the Building Division Information Technology Fund.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.080 Reinspection of premises for which valid certificate of inspection exists.

A. After the issuance of the certificate of inspection for a dwelling unit, or multiple dwelling units in the same building, the code official may require reinspection, pursuant to the provisions of this section. The code official may require reinspection where he has reasonable cause to believe that a rental dwelling unit to be reinspected, and/or the building in which the unit is located, no longer complies with the standards for issuance of a certificate of inspection. Reasonable cause to conduct a reinspection shall include, but not be limited to (1) damage to the building in which the dwelling unit to be reinspected was impacted by wind, fire, earthquake, an Act of God, or by man-made causes that jeopardize the health and safety of the occupants; (2) a complaint made by a resident of the dwelling unit to be reinspected; or (3) a documented complaint of the existence of conditions not in compliance with standards for issuance of a certificate of inspection from someone other than the resident, including, but not limited to, police officers and inspectors employed by the Division of Building and inspection or other city agency. Reasonable cause for reinspection is not required to conduct a reinspection where an occupant of a dwelling unit to be reinspected voluntarily permits the reinspection.

B. A reinspection shall be required for a rental dwelling unit either (1) every three (3) years following the issuance of a certificate of inspection or (2) every time there is a change in occupancy in the unit when receiving a notification of a change in utility users in accordance with Section 25.56.100. When reinspection is required, the code official shall send notice of the reinspection to the owner of such rental dwelling unit, by either first class mail or personal delivery that a certificate of inspection must be obtained within thirty (30) calendar days of the owner's reception of notification or the unit will be condemned for occupancy.

C. If a unit or common area is not accessible for reinspection, an initial written notice for reinspection shall be made to the owner or the owner's agent at least seven (7) days before the scheduled date of the reinspection. Said notice shall specify the date and time of the reinspection and shall be sent by (i) personal service; (ii) postage prepaid United States certified mail, return receipt requested, and regular first class mail; (iii) FedEx, UPS, or similar carrier; or (iv) posting the notice in a conspicuous location on the property where the violation exists, unless there has been personal service. The occupant of a rental dwelling unit shall receive a copy of the initial written notice for reinspection sent to the owner or the owner's agent.

D. If the reinspection of a dwelling unit is required, the owner or owner's agent shall be responsible for providing access to the unit(s) and common areas for which a certificate of inspection has previously been issued. If entry for reinspection of a dwelling unit(s) is denied by the owner, the owner's agent, or an occupant, the code official may revoke the certificate of inspection for said dwelling unit(s), condemn the unit(s) for occupancy, and require vacation of the unit(s).

E. If, following reinspection, of a dwelling unit, the code official determines that a dwelling unit no longer complies with the standards for issuance of a

certificate of inspection, the code official shall give the owner or owner's agent a written notice of the deficiencies found by the inspection; that the deficiencies must be corrected within thirty (30) calendar days of the date of the notice; and that if the deficiencies are not corrected this period, the code official may revoke the certificate of inspection, condemn the unit for occupancy, and order that it be vacated. Notice for reinspection shall be delivered to the owner or owner's agent by (i) personal service; (ii) postage prepaid United States certified mail, return receipt requested, and regular first class mail; (iii) FedEx, UPS, or similar carrier; or (iv) posting the notice in a conspicuous location on the property where the violation exists unless there has been personal service. The code official shall have the authority to grant extensions for the completion of work necessary to correct the deficiencies. If it is not feasible to complete such work to correct the deficiencies within thirty (30) calendar days from the date on which the notice was postmarked. Notwithstanding the foregoing, if the code official determines that a dwelling unit, or the building in which such unit is located, is condemnable pursuant to the provisions of this chapter or any other ordinances, the code official shall have the authority to condemn such unit or building pursuant to the provisions of this code, without regard to the time limits specified above.

(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.090 Condemnation for occupancy.

A. Condemnation for failure to obtain certificate of inspection prior to occupancy.

1. The code official may condemn for occupancy any building or portion thereof when a certificate of inspection has not been obtained within thirty (30) calendar days after notification for reinspection as provided in Sections 25.56.050 and 25.56.080.

2. The building or portion thereof that is condemned for occupation shall be vacated and shall not be occupied until such time that the code official has issued a certificate of inspection.

B. Condemnation for conditions.

1. When the code official finds that a building or portion thereof is in an extremely unsanitary or unsafe condition and is a danger to the health and safety of the occupants or the public, the code official shall condemn the building for occupancy. Notice of condemnation shall be delivered to the owner or owner's agent by (i) personal service; (ii) postage prepaid United States certified mail, return receipt requested, and regular first class mail; (iii) FedEx, UPS, or similar carrier; or (iv) posting the notice in a conspicuous location on the property where the violation exists unless there has been personal service.

2. A notice of condemnation shall clearly state the conditions causing the unsanitary or unsafe conditions thereof and shall command the immediate vacation of the building or portions thereof.

3. A placard shall be placed by the code official on the building or portion thereof notifying the public that it has been condemned for occupancy and may not be occupied until a certificate of inspection has been issued by the code official.

C. It shall be the duty of the police department to remove or cause the removal of any person from such building or portion thereof that has been condemned for occupation and to prevent any person from entering the building or portion thereof that is under condemnation.

D. A building or portion thereof that has been condemned for occupancy must be issued a valid certificate of inspection prior to being reoccupied.

E. A certificate of inspection shall not be reissued for a building or portion thereof that has been condemned for occupancy by the building commissioner unless such building or portion thereof is in substantial compliance with the provisions of the code governing exteriors of buildings and in full compliance with the provisions of the code governing interiors of buildings.

(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.100 Change of utility service—Notification.

A. Upon change or disconnection of a residential electric or gas utility service, the electric or gas utility provider shall send a written notice to the code official within seven (7) business days following such change or disconnection, including the person(s) identified at that residential address as accountholders or responsible for billing and payments. Notice of the change or disconnection in services shall be sent to the code official by the utility company by postage prepaid United States certified mail, return receipt requested, and regular first class mail; or by FedEx, UPS, or similar carrier.

B. It shall be unlawful for the owner of a dwelling unit not to inform any prospective real estate buyer of the requirement to obtain a certificate of inspection before it may be occupied.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.110 Registration of rental dwelling units required.

A. Upon the issuance of a certificate of inspection for a rental dwelling unit, the code official shall cause such dwelling to be registered in a publicly accessible database maintained by the City.

B. Upon applying for a certificate of inspection through the Building Division, the owner of any rental dwelling unit shall apply for issuance or renewal of such dwelling on a form provided by the Code Official which shall include provision for the following information:

1. The exact street address of each rental dwelling unit and any commonly-used names for the property, if any, to be registered.

2. The owner's full legal name, telephone number, mailing address, and e-mail address. If the property is owned by a corporation, limited liability company, partnership, limited partnership, trust, or real estate investment trust, the name and address of any of the following shall be provided:

i. For a corporation, a corporate officer, and the chief operating officer;

ii. For a partnership, the managing partner;

iii. For a limited liability company, the managing or administrative member;

iv. For a limited partnership, a general partner;

v. For a trust, a trustee; or

vi. For a real estate investment trust, a general partner or an officer.

3. If an owner of a rental dwelling unit does not reside within the City of St. Louis, the owner shall designate a local agent ("owner's agent") who shall be authorized to receive on behalf of the owner the service of any notice, order, or summons issued because of a violation of this chapter. Such agent must be an individual over the age of eighteen (18) years and must either (1) reside within one hundred (100) miles from the rental dwelling unit or (2) customarily and regularly attend a business office located within the City. A partner, associate, or corporate principal who meets these qualifications may be designated and registered as the owner's agent. All official notices may be served on the responsible owner's agent and any notice so served shall be deemed to have been served upon the owner.

4. The full name, telephone number, mailing address, and email address of the owner's agent, if one is so designated by the owner, to schedule inspections and receive service of any notice, order, or summons issued because of a violation of this chapter.

5. The names, addresses, and phone numbers of designated employees or authorized representatives who may be contacted in the event of an emergency.

6. The name, mailing address, telephone number, and email address of the person or entity, whether it be the owner, owner's agent, or occupant, responsible for maintenance of the yard and grounds, including but not limited to trash pickup and lawn maintenance.

7. A good-faith estimate of the asking monthly rental rate a tenant would be expected to pay to occupy the rental dwelling unit, exclusive of utilities.

C. In addition to the information provided by owner pursuant to Subsection B, the code official shall cause to be recorded in the rental registration database the following information:

1. The rental dwelling unit's number of bedrooms and bathrooms; and

2. Whether the rental dwelling unit meets certain Americans with Disabilities Act accessibility design standards, such as standards for parking, building and unit entry, intra-unit mobility, bathroom accessibility, and any other design standards as determined by the code official in consultation with the Commissioner of the Office on the Disabled.

D. No Certificate of inspection can be issued for a rental dwelling unit when the unit is not registered with the City as required by this chapter.

E. No person or entity shall rent, let, lease, or otherwise allow the occupancy of any rental dwelling unit unless said unit has been registered as required by this chapter.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.120 Change in registration information.

The owner of a rental dwelling unit already registered with the City of St. Louis shall provide updated registration information required pursuant to Section 25.56.110 upon each subsequent application for a certificate of inspection of said unit. No certificate of

inspection shall be issued when the registration information is not verified as up-to-date by the owner at the time of inspection.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.130 Reporting by Code Official.

Three (3) years after the effective date of this chapter, the Board of Aldermen may by majority vote request a report prepared by the Code Official detailing compliance with the rental registration program, the challenges with implementation, recommendations for updates to the program or amendments to this chapter to increase program compliance, and an analysis of the inspection periods for rental dwelling units. Such report shall be kept by the City Register and shall be available to the public upon request.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.140 Building Division Information Technology Fund—Established.

The Comptroller of the City of St. Louis is hereby authorized and directed to establish a special fund to be known as the Building Division Information Technology Fund. Funds deposited in the Building Division Information Technology Fund shall be used to maintain and upgrade the information technology infrastructure and software utilized by the Building Division, with the primary objective of supporting the technical aspects of managing the issuance of certificates of inspection and the rental registration program. All interest generated on deposited funds shall be accrued to the special fund so established. The Comptroller shall make an annual report on or before January 30 of each year to the Board of Aldermen and the Board of Estimate and Apportionment as to the receipts, encumbrances, and disbursements of the Building Division Information Technology Fund.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.150 Administration—Appeals.

A. The code official may adopt and promulgate such rules, policies, and procedures as are necessary for the administration of this chapter.

B. Any person aggrieved by the decision of the code official relative to this chapter may file an appeal with the Board of Building Appeals in the same manner and time period as provided in the Building Code of the City of St. Louis.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.160 False statements prohibited—Occupancy load.

It shall be unlawful for any applicant for a certificate of inspection to make a false statement in the application. It shall be the responsibility of the owner to inform the prospective occupants of the maximum occupancy load and post a copy of the certificate of inspection within the unit.

Notwithstanding the provisions of any other ordinance, it shall be unlawful to occupy or to allow occupancy of a dwelling unit beyond that number legally allowed under this chapter. It shall be the responsibility of the owner of any dwelling unit to inform any prospective occupant or prospective buyer of a building that said building is subject to the requirements of this chapter, of the posted occupancy load of all the units within that building, and of any outstanding violations of this chapter.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.170 Penalties for violation.

Any person, firm, or corporation, who shall violate any provision of this chapter shall upon conviction thereof, be subject to a fine of not more than five hundred dollars ($500.00) or imprisonment for a term not to exceed ninety (90) days, or both. Every day that a violation exists shall be deemed a separate violation. This chapter shall be deemed a regulatory code relating to buildings, structures, or premises and enforced in accordance with Chapter 25.33.
(Ord. No. 72025, § 1, 7-11-2025; Ord. No. 71835, § 1, 4-16-2024.)

25.56.180 Interiors of buildings.

1. *Sanitation.* General unsanitary conditions shall not be allowed within public areas, dwelling units or basements. Trash, debris, rodent and insect infestation shall be eliminated.

2. *Walls and ceilings.* Plaster or tile shall not be missing, loose or broken. Required fire resistance assemblies shall be maintained. Wall coverings shall not be loose, water damaged or in bad repair.

3. *Entry doors.* Lock on entry door(s) shall be in good working order. Door(s) shall latch properly for privacy. If entry door is a fire door, it shall have an operable self closer. Common area entrance/exit door(s) where a door frame exists shall not be equipped with double key or clasp type locking mechanism.

4. *Structural.* Floors/joists shall not be missing, rotten, fire damaged, spalled, rusted or broken. Floor covering shall not be torn or broken. There shall be no unsafe structural conditions.

5. *Safety.* Sufficient exits shall be provided. Stair(s) shall not be missing, rotten, fire damaged, spalled, rusted or broken. Handrail(s) or guardrail(s) shall not be missing, rotted or broken. Operable entrance/exit doors shall be provided and maintained. Excessive storage of any material shall not be permitted. Operable smoke detectors shall be provided as required by ordinance.

6. *Plumbing fixtures.* No fixtures shall be missing, inoperable or defective. No pipe or fixture shall be leaking or improperly connected. Hot water heater shall be required. Hot water heater shall be operable, and properly vented. Hot water heater shall have a temperature/pressure relief valve.

7. *Electrical equipment.* Cover plates shall not be missing or broken. Switches or outlets shall be operable, and of sufficient number. Fuses/circuit breakers shall be properly sized. Lighting fixtures shall not be defective. Excessive, defective or hazardous extension cords shall not be allowed. Loose, hanging, frayed, bare wires or open splices shall be permitted. Defective or hazardous electrical services shall be prohibited.

8. *Mechanical equipment.* Heating unit shall be operable. Furnace shall be properly vented. Space heaters shall be properly vented (when applicable).

9. *Space requirements.* Occupancy load shall be limited to:

a. Minimum habitable gross floor area of one hundred fifty (150) square feet for first occupant, plus 100 square feet for each additional occupant; or

b. Sleeping room area of a minimum of seventy (70) square feet for first occupant, fifty (50) square feet for each additional occupant.

c. Children under the age of six (6) years old shall not count towards the occupancy load.

d. Minimum occupancy area requirements for living room and dining room as reflected in the applicable sections of Chapter Four of adopting Ordinance Number 70798 of the 2018 International Property Maintenance Code of the City of St. Louis.

e. Basement occupancies shall not be permitted unless they meet the following requirements:

1. Floors and walls are weather tight so as to prevent entry of moisture.

2. Minimum ceiling heights are in accordance with applicable sections of this chapter.

3. Means of egress and emergency escape requirements as reflected in the applicable sections of the current building code of the City of St. Louis.

f. Minimum ceiling height: Habitable spaces shall have a clear ceiling height over the minimum area required by this code at not less than seven (7) feet except that in attics or top half stories the ceiling height shall not be less than seven (7) feet over not less than one-third (⅓) of the minimum area required by this code when used for sleeping, study, or similar activity. In calculating the floor area of such rooms, only those portions of the floor area of the room having a clear ceiling height of five (5) feet or more shall be included.

Exception: Hallways, corridors, bathrooms, toilet rooms, and habitable basements used as recreation rooms shall have a ceiling height of not less than seven (7) feet to the lowest projection from the ceiling.

g. Every bedroom shall be equipped with an operable window which complies with the current adopted International Property Maintenance Code.

h. Toilet rooms and bathrooms shall be arranged and designed to provide privacy.

i. The required dining room shall be located on the same level as the required kitchen.

j. Kitchens, nonhabitable spaces, and public spaces shall not be used for sleeping purposes.

(Ord. No. 72025, § 1, 7-11-2025)

Chapter 25.57

SHORT-TERM RENTAL ORDINANCE

Sections:

25.57.010	**Title.**
25.57.020	**Intent.**
25.57.030	**Definitions and general provisions.**
25.57.040	**Short-term rental permit.**
25.57.050	**Application for short-term rental, occupied permit.**

25.57.060 Application for short-term rental, non-occupied.
25.57.070 Regulations.
25.57.080 Short-term rental agent.
25.57.090 Publication of short-term rentals.
25.57.100 Grant or denial of application.
25.57.110 Provisions for revocation.
25.57.120 Taxes.
25.57.130 Short-term rental platforms.
25.57.140 Authority to prescribe additional rules and regulations.

25.57.010 Title.

This chapter shall be known as the "City of St. Louis Short-Term Rental Ordinance."
(Ord. No. 71729, § 1, 11-6-2023.)

25.57.020 Intent.

It is the purpose of this chapter to protect the public health, safety, and general welfare of individuals and the community at large to facilitate and provide reasonable means for residents to mitigate impacts created by occupancy of short-term rental units and to

implement rationally based, reasonably tailored regulations to protect the integrity of the City's neighborhoods.
(Ord. No. 71729, § 2, 11-6-2023.)

25.57.030 Definitions and general provisions.

A. *Dwelling unit,* for purposes of this chapter, means a room or group of rooms with cooking and sanitary facilities, occupied or arranged for occupancy by a single family, as defined in the existing zoning code.

B. *Short-term rental* is a lodging use, that is not a hotel or motel, RV park or campground, any type of institutional dwelling, time share property, or bed and breakfast. "Short-term rental" means a rental of any dwelling unit, in whole or in part, within the City of St. Louis, to any person(s) for transient use, other than (1) in a permitted bed and breakfast; (2) ongoing month to month tenancy for the same dwelling; or (3) home exchange for which there is no payment. "Short-term rental" allows residential occupancy of the rented dwelling for a term of thirty (30) days or less, and requires that the short-term rental use is permitted to operate pursuant to a current and valid permit on file with the City.

C. *Short-term rental agent* means a person or organization authorized by the short-term rental owner, as the operator of a short-term rental unit on the short-term rental permit application. Such an operator shall be available for and responsive to contact at all times. The short-term rental agent of short-term rental, occupied shall be the principal resident, either the owner or the tenant/lessee of the owner and authorized by the owner for short-term rental.

D. *Short-term rental, non-occupied* means a short-term rental unit not used as a principal residence by either the owner or the tenant/lessee authorized by the owner for short-term rental.

E. *Short-term rental, occupied* means a short-term rental unit used as the principal residence by either the owner or the tenant/lessee of the owner and authorized by the owner for short-term rental. A resident can have only one (1) principal residence.

F. *Short-term rental owner* means the owner of record of the property as reflected in the City of St. Louis Assessor records.

G. *Short-term rental permit* is the permit issued by the Building Division of the City of St. Louis to the short-term rental owner or the designated short-term rental agent who has submitted the required documentation and met the requirements set forth in this chapter and in Chapter 25 of the Revised Code for operation of a short-term rental unit. Short-term rentals, non-occupied shall require a graduated business license to obtain a short-term rental permit. Short-term rental permits shall only be issued to natural persons, and not to business entities.

H. *Short-term rental unit* shall mean a dwelling unit, in whole or in part, used as a short-term rental. A short-term rental unit may be either a short-term rental, occupied or a short-term rental, non-occupied.

I. *Short-term rental platform* means a person or company who for compensation or a fee uses an internet platform to primarily list property rentals including short-term rentals as defined in this chapter.
(Ord. No. 71729, § 3, 11-6-2023.)

25.57.040 Short-term rental permit.

A. No person shall rent, lease or otherwise exchange for compensation all or any portion of a dwelling unit as a short-term rental unit as defined in this chapter, without first obtaining a short-term rental permit pursuant to the regulations contained in this chapter. Nothing in this chapter shall be construed to require an owner of an owner-occupied property in which said owner resides and makes his primary residence to obtain a permit for long-term rental of a room in said home in which he or she lives, provided such owner is present and living in the home while the room is rented, or to require a general business license for a short-term rental, occupied.

B. No permittee shall transfer the right to operate under any permit issued under this chapter to any other person or entity by lease, agreement, contract or any other agreement.

C. A permit issued under this chapter shall grant the legal right to operate a short-term rental unit only at the dwelling unit for which it is issued.

D. No permit shall be issued for any short-term rental unit which offers a minimum stay of less than two (2) nights. After issuance of a permit, any short-term rental unit found to offer a minimum stay of less than two (2) nights shall be revoked.

E. No short-term rental, non-occupied unit located within a structure or upon a parcel benefited by tax increment financing or tax abatement shall be eligible for registration as a short-term rental, non-occupied unit during the term of the agreement.

F. Applicants for units within structures that only contain two (2) dwelling units shall be permitted to apply for up to two (2) short-term rental, non-occupied permits. Both of these permits shall count toward the permit holder's cap of four (4) short-term rental, non-occupied units.

G. No more than one (1) short-term rental, non-occupied permit shall be issued to applicants in a structure in which there are three (3) or four (4) units. The total percentage of units with short-term rental permits in a three (3) or four (4) unit structure cannot exceed fifty (50) percent.

H. No permits shall be issued for a short-term rental, non-occupied in a structure where there between five (5) and twenty three (23) dwelling units and over twenty five (25) percent of dwelling units in the structure have an active permit for a short-term rental, non-occupied unit.

I. No permits shall be issued for a short-term rental, non-occupied in a structure where there are twenty-four (24) or more dwelling units and over twelve and a half (12.5) percent of dwelling units in the structure have an active permit for a short-term rental, non-occupied.

J. Nothing in this chapter shall be deemed to alter, affect, supersede or conflict with the requirements of any State or federal law or of the City of St. Louis Revised Code of Ordinances, including but not limited to those within the City of St. Louis Zoning Ordinance, the building codes adopted by the City of St. Louis, and any taxes collected under the authorization of City, State or federal law including the hotel-motel room taxes which the City License Collector is authorized to collect under RSMo 67.657, RSMo 67.619, or any other law which requires registration with the License Collector, including but not limited to, the requirement of the provision of information as deemed necessary to confirm the type of business to be operated.
(Ord. No. 71729, § 4, 11-6-2023.)

25.57.050 Application for short-term rental, occupied permit.

Applicants for a short-term rental permit for a short-term rental, occupied shall submit, on an annual basis, an application for a short-term rental permit to the Building Division.

A. The application for a short-term, occupied short-term rental permit shall be accompanied by a non-refundable application fee in the amount of one hundred fifty dollars ($150.00.) Such application shall require the following information, to be collected on a form provided by the Building Division, and shall be completed prior to the inspection required in the application process, which shall be conducted by the Building Division:

a. The address of the dwelling unit to be used as a short-term rental;

b. The name, address, telephone number, and email address of the owner, or tenant/lessee applying for the permit;

c. Signed acknowledgment that from the owner, or tenant/lessee applying for the permit that they have reviewed this chapter and understand its requirements;

d. The number and location of off street or on site parking spaces allotted to the premises;

e. The owner's or the tenant/lessee's agreement to use his or her best efforts to ensure that use of the premises by short-term rental occupants will not disrupt the neighborhood, and will not interfere with the rights of neighboring property owners to the quiet enjoyment of their properties; and

f. Any other information that this chapter requires and any other information required by the Building Commissioner in the execution of the application process as part of any application for a short-term rental permit, as determined by the Building Commissioner. The Building Commissioner or the Commissioner's designee shall have the authority to obtain additional information from the applicant as necessary to achieve the objectives of this chapter. The Building Commissioner shall promulgate rules and regulations deemed necessary in the interest of public safety, public health and general welfare to interpret and implement the provisions of this chapter.

B. An application for a short-term rental, occupied shall be accompanied by a form requiring the applicant to affirm that the property to be used as a short-term rental, occupied is occupied by an owner who occupies the property as their primary residence. An individual may have only one (1) primary residence in the City of St. Louis. The applicant shall also affirm that the resident of the property has paid their personal property tax at the address of the proposed short-term rental, occupied unit for the previous tax period. The applicant shall also affirm that the property is not subject to any contractual restrictions, precluding the property from being used for short-term rentals, including but not limited to: homeowner association agree-

ment, condominium bylaws, restrictive covenants, leases or building restrictions. The applicant shall affirm that the property owner or renter has no outstanding real estate taxes, bills for services of City liens associated with the property that is the subject of the application, nor does the owner or renter owe any other obligations to the City including: (a) personal property tax; (b) real estate tax on properties located in the City of St. Louis; (c) City of St. Louis earnings tax; (d) City of St. Louis water and refuse bills; (e) City of St. Louis business license fees; and (f) fees owed in connection with short-term rentals. Submission of an form containing false information will be cause for revocation of permit for short-term rental.

C. Attached to the submission of the application described in this section, the short-term rental permit applicant shall provide:

a. Written rules to be posted in the short-term rental unit, which must include: Acknowledgement that it shall be unlawful to allow or make any noise or sound that exceeds the limits set forth in the City's existing ordinances, including but not limited to Ordinance 67002 as may be amended, that regulate noise.

b. Acknowledgement and agreement that the maximum occupancy of a short-term rental unit is limited to the occupancy limit as determined by the Building Commissioner and, if available, the location and the amount of on site parking.

c. Acknowledgement and agreement that violations of this chapter by short-term rental agent, short-term rental owner, or short-term rental guest may result in immediate termination of the permit as well as the potential liability for payments of fines levied by the City; and

d. Written approval by the owner of the property for use of the property as a short-term rental.

(Ord. No. 71729, § 5, 11-6-2023.)

25.57.060 Application for short-term rental, non-occupied.

A. Applicants for a short-term rental permit for a short-term rental, non-occupied shall submit, on an annual basis, an application for a short-term rental permit to the Building Division.

B. Certain dwelling districts. No short-term rental permit may be issued within a dwelling district zoned "A Single-Family" without a conditional use permit.

C. The application for a short-term rental, non-occupied permit shall be accompanied by a non-refundable application fee in the amount of one hundred fifty dollars ($150.00). Such application shall require the following information, to be collected on a form provided by the Building Division, and shall be completed prior to the inspection required in the application process, which shall be conducted by the Building Division:

a. The address of the dwelling unit to be used as a short-term rental;

b. The name, address, telephone number, and email address of the owner, or tenant/lessee and short-term rental agent.

c. Signed acknowledgment that he or she has reviewed this chapter and understands its requirements;

d. The number and location of off street or on site parking spaces allotted to the premises;

e. The owner's or the tenant/lessee's and short-term rental agent's agreement to use his or her best efforts to ensure that use of the premises by short-term rental occupants will not disrupt the neighborhood, and will not interfere with the rights of neighboring property owners to the quiet enjoyment of their properties; and

f. Written approval by the owner of the property for use of the property as a short-term rental.

g. Any other information that this chapter requires and any other information required by the Building Commissioner in the execution of the application process as part of any application for a short-term rental permit, as determined by the Building Commissioner. The Building Commissioner or the Commissioner's designee shall have the authority to obtain additional information from the applicant as necessary to achieve the objectives of this chapter. The Building Commissioner shall promulgate rules and regulations deemed necessary in the interest of public safety, public health and general welfare to interpret and implement the provisions of this chapter.

D. Attached to the submission of the application described in this section, the short-term rental permit applicant shall provide:

a. Written rules to be in the short-term rental unit, which must include: Acknowledgement that it shall be unlawful to allow or make any noise or sound that exceeds the limits set forth in the City's existing ordinances that regulate noise, including but not limited to Ordinance 67002.

b. Acknowledgement that the maximum occupancy of a short-term rental unit is limited to the

occupancy limit as determined by the Building Commissioner and, if available, the location and the amount of on-site parking.

c. Acknowledgement and agreement that violations of this chapter by short-term rental agent, short-term rental owner, or short-term rental guest may result in immediate termination of the permit as well as the potential liability for payments of fines levied by the City; and

d. A form affirming that the property is not subject to any contractual restrictions, precluding the property from being used for short-term rentals, including but not limited to: homeowner association agreement, condominium bylaws, restrictive covenants, leases or building restrictions. The applicant shall affirm that the property owner or renter has no outstanding real estate taxes, bills for services of City liens associated with the property that is the subject of the application, nor does the owner or renter owe any other obligations to the City including: (a) personal property tax; (b) real estate tax on properties located in the City of St. Louis; (c) City of St. Louis earnings tax; (d) City of St. Louis water and refuse bills; (e) City of St. Louis business license fees; and (f) fees owed in connection with short-term rentals. Submission of false information will be cause for revocation of permit for short-term rental.
(Ord. No. 71729, § 6, 11-6-2023.)

25.57.070 Regulations.

A. Any short-term rental, non-occupied applicant may be issued permits for no more than four (4) short-term rental units owned by the same property owner in the City of St. Louis. Applicants must be natural persons and applicants are limited to four (4) active short-term rental, non-occupied permits. No permits for a short-term rentals, non-occupied shall be issued to applicants in a structure for which the percentage limit of short-term rentals, non-occupied has already been reached as provided in Section 25.57.040.

B. Short-term rentals shall be made available only for the occupancy load to be determined by the Building Commissioner in accordance with the City's residential code, and that shall be the limit of persons that may occupy the dwelling unit being rented.

C. The permit holder of a short-term rental unit may not enter into a contract with more than one (1) party during any given rental period.

D. The short-term rental unit may not be rented or offered for use as reception space, party space, meeting space, or for other similar events.

E. No food service may be provided by the permit holder of the short-term rental; pre-packaged foods and beverages may be provided in the short-term rental unit and will not violate this provision.

F. No exterior evidence that the property is being used as a short-term rental shall be allowed, including signs, with the exception of a marker limited to one (1) foot by one (1) foot in size issued by the City of St. Louis.

G. If the short-term rental agent changes, the new short-term rental agent shall notify the City of St. Louis within ten (10) business days of the change or prior to any rental of the short-term rental, whichever is sooner.

H. The short-term rental unit shall have working smoke detectors inside and outside every bedroom, carbon monoxide alarms outside every bedroom, and a properly maintained and charged fire extinguisher on all habitable floors.

I. A legible copy of the short-term rental unit permit shall be posted within the unit, and include prominently all of the following information, in addition to any other information required by the Building Commissioner:

a. The name, address, telephone number and email address of the short-term rental agent;

b. The short-term rental unit permit number;

c. The maximum occupancy of the unit

d. The maximum number of vehicles that may be parked at the unit.
(Ord. No. 71729, § 7, 11-6-2023.)

25.57.080 Short-term rental agent.

Every short-term rental shall have a short-term rental agent designated on the application for a short-term rental permit. Failure of the short-term rental agent to fulfill the duties listed below may result in the revocation of the short-term rental permit. A short-term rental owner may also serve as the short-term rental agent. The duties of the short-term rental agent are to:

A. Be available to address any problems at all times arising from the use of the short-term rental unit during the entire period of the rental;

B. The short-term rental agent must be able to be physically present at the address within one (1) hour if

required. It is an obligation of the applicant to provide a short-term rental agent that can be on-site within one (1) hour if required.

C. Keep his or her name and emergency contact phone number posted in a readily visible place in the short-term rental unit;

D. Receive and retain a copy of any notice of violation related to the use or occupancy of the premises from the property owner;

E. Monitor the short-term rental unit for compliance with this chapter; and

F. Ensure that the short-term rental permit number is listed on each online listing.
(Ord. No. 71729, § 8, 11-6-2023.)

25.57.090 Publication of short-term rentals.

All addresses for short-term rentals with a permit will be posted publicly on the City's website. All addresses for short-term rentals with a revoked permit shall be posted publicly on the City's website.
(Ord. No. 71729, § 9, 11-6-2023.)

25.57.100 Grant or denial of application.

Review of a short-term rental permit application shall be conducted in accordance with due process principles and shall be granted unless the applicant fails to meet the conditions and requirements of this Chapter or federal or State law or local ordinance related to the operation of a short-term rental, or otherwise fails to demonstrate the ability to comply with local, State or federal law through the operation of the proposed short-term rental. No permit shall be granted to operate a short-term rental unit if the property is the subject of a unresolved nuisance violation and no permit shall be issued for any property with any unresolved City violations. Any false statements or information provided in the application are grounds for revocation and/or imposition of penalties, including denial of future applications.
(Ord. No. 71729, § 10, 11-6-2023.)

25.57.110 Provisions for revocation.

A. To ensure the continued application of the intent and purpose of this chapter, the Building Division shall notify the short-term rental owner and the short-term rental agent of a short-term rental unit of all instances in which nuisance behavior of the rental guest or the conduct of his or her short-term rental unit agent results in a notification letter for a code violation or other legal infraction.

B. The Saint Louis Metropolitan Police Department shall maintain a record of all municipal violations of City ordinances and State law occurring at or relating to a short-term rental unit and communicate those violations regularly to the Building Division. Building inspectors, and other City departments, may also contribute violations to this record of violations. Violations may be incurred by the short-term rental owner, short-term rental agent, as well as short-term rental guests. When there are three (3) violation notices sent regarding law violations and nuisance instances at the same property within a period of twenty-four (24) consecutive months, the City shall revoke any existing permits and reject all applications for short-term rental permits for that particular property for a period of up to twelve (12) consecutive months. Any additional properties with the same owner that do not have three (3) consecutive violation notices within a twenty-four-month period shall remain valid, and the short-term rental agent of such additional properties may continue to serve as the short-term rental agent unless and until the underlying permit has been revoked. Permit holders shall be afforded an opportunity to rectify all violations within thirty (30) days to the satisfaction of the Building Commissioner. Further, the permit holder shall have the right to appeal the revocation decision within thirty (30) days of the date of revocation, as set forth in this chapter.

C. Fully adjudicated violations prosecuted in municipal court involving a property that is a short-term rental unit will be assessed a five hundred dollars ($500.00) fine per violation. Short-term rental permits that are revoked shall be posted on the official City website by the Building Commissioner.

D. Except as provided herein, any person violating the provisions of the Code shall be prosecuted as provided in this chapter. With respect to violations that are continuous with respect to time, each day the violation continues is a separate offense. Renter guests staying in short-term rentals who violate any City, State or federal law are subject to being charged with law violations. Nothing in this chapter shall be intended to limit the ability of the City to pursue any other remedies available to it under any law, federal, State or local.

E. The Building Commissioner has the power to initiate revocation of the permit when the subject property of the permit is not being operated in compliance with the short-term rental operating requirements set forth under this chapter and also to initiate revocation

in the interest of the public welfare. The Building Commissioner may initiate permit review and potential revocation of the permit upon the first instance of a violation or a complaint. Nothing in this chapter limits existing powers of the Building Commissioner, including his ability to condemn properties for occupancy and to take emergency actions.

F. A short-term rental owner or short-term rental agent aggrieved by the City's decision to revoke or deny a short-term rental permit may appeal the decision in writing to the Building Commissioner. The appeal must be filed within thirty (30) business days of the adverse action and it shall contain a concise statement of the reasons for the appeal. The Building Commissioner or appointed designee shall consider and respond to the appeal in writing within thirty (30) days after receipt. The Building Commissioner shall adopt administrative rules which shall govern any such appeals. Such procedures and processes must conform to the constitutional principles of due process and shall provide notice and an opportunity to be heard. The Building Commissioner shall render a determination, which will constitute a final ruling. The decision of the Building Commissioner may be appealed to the Circuit Court of the City of St. Louis.

G. Nothing in this section shall limit the City from enforcement of its Code, State or federal law by any other legal remedy available to the City. Nothing in this section shall be construed to limit or to supplant the power of any City inspector, Marshal, or other duly empowered officer under the City's ordinances, rules, and regulations and the authority granted under State law, as amended, to take necessary action, consistent with the law, to protect the public from property which constitutes a public nuisance or to abate a nuisance by any other lawful means or proceedings.

H. The assistance and cooperation of police, fire and health departments and all other officials shall be available to the Building Commissioner as required in the performance of his duties under this chapter.

I. The Building Division shall monitor a public intake portal through which residents can submit questions or complaints to the Building Division regarding short-term rentals.
(Ord. No. 71729, § 11, 11-6-2023.)

25.57.120 Taxes.

Short-term rentals are subject to applicable State and local taxes and are responsible for payment thereof as established by State law and city ordinances, including all taxes set forth in Section 25.57.040 herein.
(Ord. No. 71729, § 12, 11-6-2023.)

25.57.130 Short-term rental platforms.

A. *Permit required.* A permit will be required for a short-term rental platform to operate utilizing properties in the jurisdiction of the City of St. Louis. The application for short-term rental platform shall be accompanied by a non-refundable application fee in the amount of five hundred dollars ($500.00.) The permit application to be generated by the City shall include requirements as determined by the Building Commissioner, and such requirements shall include, but are not limited to: the short-term rental platform shall limit listings within the City of St. Louis to those with a valid short-term rental permit. Short-term rental platforms shall have the duty to remove properties with no such permit, and properties which have experienced a loss or revocation of such permit, from the platform. The City will notify the platform permit holder when the permit for such property's short-term rental has been revoked. Platforms shall remove properties that are no longer permitted within seven (7) days of the notice provided to the platform by the City. Failure to so remove such property from the platform shall result in a violation of this section, and may result in revocation of the permit issued to the short-term rental platform, as well as constituting a violation of this chapter.

B. The City shall post a list of all short-term rental platforms with a revoked permit and those with a valid permit publicly on the City's website.

C. Short-term rental platforms shall ensure that each listing for a short-term rental is accompanied by a short-term rental permit number.

D. Short-term rental platforms must provide a phone line and a link to the City's website portal for community members to submit concerns and complaints regarding short-term rentals in their neighborhood.

E. Short-term rental platforms must provide information regarding compliance with this chapter, and penalties for violation of this chapter to short-term rental agents prior to listing a short-term rental.

F. Within the first year of the ordinance's effective date, short-term rental platforms must meet with the Building Division to provide and receive feedback on implementation.

G. Short-term rental platforms that are properly permitted will be listed on the City's website as permitted platforms in the City of St. Louis.

H. Short-term rental platforms shall be required to prompt hosts to include the City-issued permit number in their listing(s). Hosting platforms shall not complete any booking transactions for any dwelling unit or other property purporting to be a short-term rental in the City unless it is listed on the City's registry to be created by the Building Commissioner, at the time the platform receives a fee for the booking transaction. However, no short-term rental platform shall be in violation of this subsection for any short-term rental transaction occurring fewer than two (2) days after the short-term rental permit expired or was revoked.

I. In addition to any other remedy provided by this chapter or allowed by law, the Building Commissioner may deny a permit or revoke a short-term rental platform permit for violations of this chapter. Such permit holder shall be notified in writing of the grounds for denial or revocation of such permit and of their right to appeal the decision.

J. The remedies provided for in this chapter are in addition to, and not in lieu of, all other legal remedies, civil or criminal, which may be pursued by the City to address any violation of this chapter.
(Ord. No. 71729, § 13, 11-6-2023.)

25.57.140 Authority to prescribe additional rules and regulations.

The Building Commissioner shall promulgate regulations as may be necessary and feasible for the carrying out of the intent of this chapter and the duties of the Commissioner that are not inconsistent with the provisions of this chapter and rules and regulations deemed necessary in the interest of public safety, public health and general welfare to interpret and implement the provisions of this chapter within one hundred eighty (180) days following the effective date of this chapter subject to approval by the Board of Public Service. The rules and procedures as adopted by the Board of Public Service shall be in writing and kept on file in the Building Commissioner's Office and posted to the City's website. The rules and procedures may be amended by the Building Commissioner as needed with the approval of the Board of Public Service.
(Ord. No. 71729, § 14, 11-6-2023.)

Chapter 25.60

CARBON MONOXIDE DETECTORS

Prior ordinance history: Ord. 63673

Sections:

25.60.010	**Definitions.**
25.60.020	**Required—Single-family residential buildings.**
25.60.030	**Required—Multiple-family residential buildings.**
25.60.040	**Compliance—Rules and regulations.**
25.60.050	**Unlawful to make detector inoperable.**
25.60.060	**Maintenance.**
25.60.070	**Penalty for violation.**

25.60.010 Definitions.

For purposes of this chapter the following definitions shall apply:

(1) "Fossil fuel" shall include coal, natural gas, kerosene, oil, propane and wood.

(2) "Rehabbed" shall mean any repair or reconstruction of the interior of the building or structure which requires a permit under the applicable Building Code. (1994 C., § 25.60.010; Ord. No. 63842, § 1, 1996.)

25.60.020 Required—Single-family residential buildings.

The owner of every new building or structure within the City of St. Louis which is intended to be occupied for residential purposes by a single family and every single-family residential building or structure which is rehabbed after the effective date of the ordinance codified in this chapter, and which is heated by a fossil fuel powered heating unit which is fully contained within the interior of the building or structure, shall install not less than one (1) approved carbon monoxide detector outside the area of sleeping rooms and additional units as required by the Fire Marshal. (1994 C., § 25.60.020; Ord. No. 63842, § 2, 1996.)

25.60.030 Required—Multiple-family residential buildings.

The owner of every new building or structure within the City of St. Louis which is intended to be occupied for residential purposes by more than one family and every multiple-family residential building or structure which is rehabbed after the effective date of the ordinance codified in this chapter, and which is heated by a

fossil fuel powered heating unit which is fully contained within the interior of the building or structure, shall install not less than one (1) approved carbon monoxide detector in each unit of said building or structure. (1994 C., § 25.60.030; Ord. No. 63842, § 3, 1996.)

25.60.040 Compliance—Rules and regulations.

A carbon monoxide detector is deemed approved for purposes of this chapter if it complies with all applicable state and federal regulations, and bears the label of a nationally recognized standard testing laboratory, and meets the revised standard of at least UL 2034 dated October 1, 1995 and subsequent revision or its equivalent. The Fire Marshal shall issue rules and regulations, not inconsistent with the provisions of this chapter, for the implementation and administration of the provisions of this chapter relating to carbon monoxide detectors. (1994 C., § 25.60.040; Ord. No. 63842, § 4, 1996.)

25.60.050 Unlawful to make detector inoperable.

It shall be unlawful for any person to, in any way to make inoperable a carbon monoxide detector required under this chapter, except that this provision shall not apply to any building owner, manager, and/or agent of said building owner or manager in the normal procedure of maintenance including replacement of batteries. (1994 C., § 25.60.050; Ord. No. 63842, § 5, 1996.)

25.60.060 Maintenance.

The owner of a building or structure which is subject to the provisions of this chapter, shall supply, install, test, as per the manufacturers specifications, and maintain required carbon monoxide detectors. The owner shall also supply all necessary equipment required for the operation of said detectors. (1994 C., § 25.60.060; Ord. No. 63842, § 6, 1996.)

25.60.070 Penalty for violation.

Any violation of this chapter shall be punishable by a fine of not less than $50.00 nor more than $500.00 and/or confinement for a period not to exceed ninety (90) days. Each day that said violation continues shall constitute a separate violation of Section 25.60.010. (1994 C., § 25.60.070; Ord. No. 63842, § 7, 1996.)

Chapter 25.62

REPAIR PERMIT ISSUANCE

Sections:

25.62.010 Permit issuance prohibited when.

25.62.010 Permit issuance prohibited when.

The code official shall not issue any permits to repair any building or structure condemned in accordance with either Section 119.0 or 120.0 of the City Building Code if such building or structure is included in an executed contract for demolition between the City and a demolition contractor. (1994 C., § 25.62.010; Ord. No. 66226, § 1, 2004.)

Chapter 25.64

DEMOLITION, REPAIR, BOARD UP OR CLEAN UP—COSTS

Sections:

25.64.010 Certified—Sent to Comptroller.

25.64.020 Special tax bill.

25.64.030 Constitutes personal debt and property lien.

25.64.010 Certified—Sent to Comptroller.

Whenever the Building Commissioner, or the Building Commissioner's designated officer, issues an order whereby a building or structure is demolished, repaired, boarded up or the property is cleaned up as a result of a violation of the Building Code which renders the condition of the building or structure detrimental to the to the health, safety, or welfare of the residents thereof, and therefore constitutes a public nuisance, the cost of the demolition, repair, board-up, security measures, or clean-up, as well as the cost of police security escort if provided during the demolition, repair, board-up, security measures, or clean-up, shall be certified by the Building Commissioner and added to the annual real estate tax bill or sent to the office of the Comptroller to be included in a special tax bill.

The City of St. Louis Division of Police may provide a security escort during a demolition, repair, board-up or clean-up effort when such precaution is deemed prudent under the circumstances by the Building Commissioner or the Building Commissioner's designated officer. The cost for a security escort shall be one hundred fifty dollars ($150.00).

(1994 C., § 25.64.010; Ord. No. 71991, § 2, 2-24-2025; Ord. No. 71154, § 1, 5-7-2020; Ord. No. 70910, § 1, 2-14-2019; Ord. No. 70736, § 1, 3-12-2018; Ord. No. 63800, § 1, 1996.)

25.64.020 Special tax bill.

Upon receipt of the certified costs or fines of the activity outlined in Section 25.64.010, the office of the

Comptroller shall prepare a special tax bill for the amount of the cost certified and may send the special tax bill to the Collector of Revenue for collection by Section 5.08.010 et seq. of the Revised Code of the City of St. Louis and RSMo 92.700 et seq., or may initiate the collection of a special tax bill in any other lawful manner.

A lien for such costs shall be placed against the property whereon such violation was permitted to exist. Said special tax bill shall be deemed a personal debt against the property owner(s) and shall also be a lien on the property until paid.

These special tax bills or liens may not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such special tax bills or liens. Further, special tax bills shall be permitted to be waived when ownership of said property for which the bill or lien was issued is accepted by Land Reutilization Authority, Saint Louis Development Corporation, or any other City agency. Any person, firm or corporation who shall refuse or neglect to comply with the provisions of this section or who shall violate any of the provisions thereof shall be subject to the penalties as set forth in Section 25.01.030.
(1994 C., § 25.64.020; Ord. No. 71991, § 2, 2-24-2025; Ord. No. 70910, § 1, 2-14-2019; Ord. No. 70736, § 1, 3-12-2018; Ord. No. 63800, § 2, 1996.)

25.64.030 Constitutes personal debt and property lien.

From the date of issuance of the special tax bill by the office of the Comptroller, it shall be deemed a personal debt of the owner of the property and shall also constitute a lien on the property until paid. (1994 C., § 25.64.030; Ord. No. 63800, § 3, 1996.)

Chapter 25.66

FIRE, EXPLOSION OR OTHER CASUALTY—COSTS

Sections:

25.66.010 Condemned buildings declared public nuisance.

25.66.020 Order—Failure to comply—Special tax bill.

25.66.030 Insurance proceeds.

25.66.040 City not a party to insurance contract.

25.66.050 Penalty for violation.

25.66.010 Condemned buildings declared public nuisance.

Any building or structure located within the City of St. Louis which is damaged by any fire, explosion, or other casualty loss to the extent that it is condemned by the Building Commissioner shall be declared a public nuisance for purposes of this chapter. (1994 C., § 25.66.010; Ord. No. 63838, § 1, 1996.)

25.66.020 Order—Failure to comply—Special tax bill.

If upon making an inspection and examination, the Building Commissioner finds that a building or structure has become a public nuisance under Section 25.66.010 of this chapter, he shall order the owner(s) to proceed to properly demolish, repair, and secure or correct all conditions causing condemnation of said building, structure within seven (7) days. The Building Commissioner may, upon the failure of the owner(s) to comply with this order, when the public interest may so require, correct, remove or abate the conditions set forth in his order. All costs attending such action in such cases shall be paid from the appropriate fund. The cost shall be certified to the office of the Comptroller, who shall cause a special tax bill against the property to be prepared and collected in the same manner and procedures as other real estate tax bills. Said special tax bill shall be deemed a personal debt against the property owner and shall also be a lien on the property until paid. These bills or liens shall not be forgiven except by the City Counselor, who shall, in writing, instruct the building official to forgive such bills or liens. Further, demolition and/or board-up bills may be waived when ownership of said property, for which the bill or lien was issued, is accepted by Land Reutilization Authority, Saint Louis Development Corporation or any other City agency, department, or division. (1994 C., § 25.66.020; Ord. No. 63838, § 2, 1996.)

25.66.030 Insurance proceeds.

A. If there are proceeds of any insurance policy based upon a covered claim payment made for damage or loss to a building or structure caused by or arising out of any fire, explosion, or other casualty loss, and if the covered claim payment for such damage or loss exceeds fifty (50) percent of the face value of the policy on such building or structure, then the insurance carrier for such building or structure shall pay twenty-five (25) percent of such insurance claim proceeds to the office of the Comptroller, who shall hold such money in an

interest bearing account. If a bill or special tax bill is issued under Section 25.66.020 of this chapter such shall be paid from the money held by the Comptroller, and if there is any excess, such shall be paid by the Comptroller to the insured.

B. If within 30 days of the receipt of such insurance proceeds the Building Commissioner has not conducted an inspection as required in Section 25.66.030 of this chapter, then the Comptroller shall release such proceeds and any interest which has accrued on such proceeds to the insured.

C. If such building or structure is repaired or demolished pursuant to this chapter without cost to the City of St. Louis, then any insurance proceeds paid to the Comptroller and any interest thereon shall be paid to the insured.

D. Upon presentation of satisfactory proof that the insured has removed or will remove debris and repair, rebuild, otherwise make the insured building or structure safe and secure, the Building Commissioner shall issue a certificate, within 30 days after receipt of such satisfactory proof, to permit the payment of any insurance proceeds directly to the insured without deduction of the amount payable to the City of St. Louis under Subsection A of this section. (1994 C., § 25.66.030; Ord. No. 63838, § 3, 1996.)

25.66.040 City not a party to insurance contract.

This chapter does not make the City a party to any insurance contract and does not make the insurer liable to any party for any amount in excess of the proceeds otherwise payable under its insurance policy. (1994 C., § 25.66.040; Ord. No. 63838, § 4, 1996.)

25.66.050 Penalty for violation.

Any person, firm, or corporation who shall violate a provision of this chapter or who shall fail to comply with any of the requirements thereof, shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of five hundred dollars ($500.00) or by imprisonment not exceeding ninety (90) day; or by both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct offense. (1994 C., § 25.66.050; Ord. No. 63838, § 5, 1996.)

Chapter 25.70

BUILDING ENERGY AWARENESS

Sections:

25.70.010 Purpose and policy.
25.70.020 Definitions.
25.70.030 Benchmarking and benchmarking submission required.
25.70.040 Reporting and Analysis of Benchmarking Information.
25.70.050 Maintenance of Records.
25.70.060 Violations and Enforcement.
25.70.070 Rules.

25.70.010 Purpose and policy.

The energy and water use of covered property shall be benchmarked and submitted to the City in accordance with this article. (1994 C., § 25.70.010; Ord. No. 70474, § 1, 2-16-2017)

25.70.020 Definitions.

Unless the context specifically indicates otherwise, the meaning of terms used in this article shall be as follows:

A. "Benchmark" means to input and submit the total energy and water consumed for a property for the previous calendar year and other descriptive information for such property as required by the benchmarking tool. Total energy and water consumption shall not include separately metered uses that are not integral to covered property operations as determined by the Commissioner.

B. "Benchmarking submission" means a submission to the Commissioner, on an annual basis as set forth herein, evidencing the covered property's compliance with the benchmark mandate and includes the required reported benchmarking information for the applicable year.

C. "Benchmarking tool" means the U.S. Environmental Protection Agency's ENERGY STAR Portfolio Manager to track and assess the energy and water use of certain covered properties relative to similar covered properties.

D. "Commissioner" means the City of St. Louis Building Division Building Commissioner, or the Commissioner's designee.

E. "Communications infrastructure" means the facilities used for the sale of communications services, including, voice, broadband, data and video services.

F. "Condominium" means a site that combines separate ownership of individual units with common ownership of other elements such as common areas.

G. "Covered property" means any Group 1 covered property or Group 2 covered property as defined herein. The term "covered property" shall not include any building owned by the State of Missouri or the federal government.

H. "Energy" means electricity, natural gas, steam, or fuel oil sold by a utility to a customer of a covered property, or on-site generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses captured by the ENERGY STAR Portfolio Manager.

I. "ENERGY STAR Portfolio Manager" means the tool developed and maintained by the U.S. Environmental Protection Agency to track and assess the relative energy performance of buildings nationwide.

J. "ENERGY STAR score" means the numeric rating generated by the ENERGY STAR Portfolio Manager tool to track and assess the energy and water use of certain covered properties relative to similar covered properties.

K. "Financial hardship" (of a property) means a property that:

1. Had arrears of property taxes or water or refuse charges that resulted in the property's inclusion, within the prior two years, on the City's annual tax lien sale list; or

2. Has a court appointed receiver in control of the asset due to financial distress; or

3. Is owned by a financial institution through default by the borrower; or

4. Has been acquired by a deed in lieu of foreclosure; or

5. Has a senior mortgage subject to a notice of default.

L. "Group 1 covered property" means a covered property:

1. That is a building that is greater than or equal to 50,000 gross square feet in total combined floor area; and

2. That is owned by the City; or

3. For which the City regularly pays all or a majority of the annual energy bills.

M. "Group 2 covered property" means a covered property, other than Group 1 covered property,

1. That is a building that is greater than or equal to 50,000 gross square feet in total combined floor area; or

2. That has a building that is held in the condominium form of ownership that is governed by the same board, and that is greater than or equal to 50,000 gross square feet in total combined floor area.

N. "Owner" means any of the following:

1. An individual or entity possessing title to a covered property;

2. The net lessee in the case of a property subject to a triple net lease;

3. The board in the case of a condominium;

4. The board in the case of a cooperative apartment corporation; or

5. An agent authorized, in writing on file with the Commissioner, to act on behalf of any of the above.

O. "Person" means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. This definition includes all federal, state or local governmental entities.

P. "Reported benchmarking information" means information both defined and generated by the ENERGY STAR Portfolio Manager and descriptive information about the covered property and its operational characteristics that are submitted to the Commissioner as follows:

1. Descriptive information:

a. Building ID, as assigned by the Commissioner;

b. Property Address & Contact Information;

c. Primary Property Type(s); and

d. Gross Floor Area(s);

2. Output information (generated by ENERGY STAR Portfolio Manager), limited to the following:

a. Weather Normalized Site & Source Energy Use Intensity (Site EUI& Source EUI);

b. Direct & Indirect Greenhouse Gas Emissions;

c. Indoor & Outdoor Water Use;

d. The ENERGY STAR score, if available; and

e. Data Accuracy.

Q. "Tenant" means a person occupying or holding possession of a covered property, or part of a covered property, pursuant to a rental or lease agreement.

R. "Triple Net Lease" A lease agreement on a property that designates the lessee or tenant as being solely responsible for all real estate taxes, building insurance, and maintenance on the property in addition to any customary fees that are expected under the lease agreement, including, but not limited to, rent and utility fees or payments.

S. "Utility" means an entity that distributes and sells water, steam, natural gas, electricity, thermal energy services or other energy for covered property. (1994 C., § 25.70.020; Ord. No. 70474, § 2, 2-16-2017)

25.70.030 Benchmarking and benchmarking submission required.

A. Every owner shall annually provide a benchmarking submission for each covered property to the Commissioner, in an electronic form as established by the Commissioner's rule, by the date specified below:

1. No later than December 31, 2017, and no later than every April 1 commencing in 2018 thereafter, each Group 1 covered property shall be benchmarked for the previous calendar year by the entity primarily responsible for the management of such property.

2. No later than April 1, 2018, and no later than every April 1 thereafter, the owner of a Group 2 covered property shall benchmark such property for the previous calendar year.

Prior to making any benchmarking submission, the owner of a covered property shall run all data through all data quality assurance tools within the ENERGY STAR Portfolio Manager, and correct all missing or incorrect information identified by the tool. The owner, at owner's sole discretion, can also choose to have a third party assessment to ensure reporting accuracy, keeping the accuracy report private unless the owner chooses to release it.

B. Where the current owner learns that any information reported as part of a benchmarking submission is inaccurate or incomplete, the information so reported shall be amended in the benchmarking tool by the owner and the owner shall provide an updated benchmarking submission to the Commissioner within 30 days of learning of the inaccuracy.

C. The Commissioner may grant an extension of the benchmarking submission date or an exemption from the benchmarking requirements to the owner of a covered property that submits a request, together with documentation, in a form prescribed by the Commissioner's rule, at least thirty (30) days prior to any benchmarking submission deadline, establishing any of the following criteria:

1. The property does not have a certificate of occupancy or temporary certificate of occupancy for all 12 months of the calendar year being benchmarked.

2. A demolition permit was issued during the prior calendar year, provided that demolition work has commenced and energy-related systems have been significantly compromised.

3. The covered property had average physical occupancy of less than 50 percent throughout the calendar year for which benchmarking is required.

4. The Commissioner determines that, due to special circumstances unique to the applicant's facility and not based on a condition caused by actions of the applicant, strict compliance with provisions of this chapter would cause financial hardship or would not be in the public interest.

5. The property is primarily used for manufacturing or other industrial purposes for which benchmarking results would not meaningfully reflect covered property energy use characteristics due to the intensive use of process energy.

6. The owner is unable to benchmark due to the failure of either a utility or a tenant (or both) to report the information necessary for the owner to complete any benchmarking submittal requirement.

7. The property is primarily multifamily residential, it is not master metered, and the serving electric utility does not provide data aggregation services or access to whole-building utility data. Once such services are available from the utility, as determined by the director, such buildings will no longer be exempt from benchmarking requirements, and shall file initial benchmarking reports in the first required reporting year following such data availability.

Any owner requesting such an extension or exemption shall provide the Commissioner any and all documentation requested to substantiate the request or otherwise assist the Commissioner in the extension or exemption determination. Any extension or exemption granted shall be limited to the benchmarking submission for which the request was made and shall not extend to past or future submittals.

D. Nothing in this article shall be construed as to prevent a person in control of a building, not otherwise a covered property, from submitting any benchmarking information to the Commissioner, otherwise in accordance with this article. The Commissioner may enter into agreements with any such persons governing any such participation.

E. A benchmarking submission is not required for any Group 2 covered property if all or substantially all of the property is used for communications infrastructure. (1994 C., § 25.70.030; Ord. No. 70474, § 3, 2-16-2017)

25.70.040 Reporting and Analysis of Benchmarking Information.

A. The Commissioner shall make available to the public annually the reported benchmarking information for the previous calendar year according to the following schedule:

1. For each Group 1 covered property, no later than March 31, 2018 and no later than every August 1 thereafter; and

2. For each Group 2 covered property, no later than August 1, 2018 and every August 1 thereafter.

B. The Commissioner shall publish a summary report in accordance with the following schedule:

1. No later than December 1, 2018, and annually thereafter, a summary report on the benchmarking of Group 1 covered property, including an assessment of accuracy and issues affecting accuracy, summary energy and water consumption statistics and trends observed, including an assessment of changes across the portfolio over time.

2. No later than December 1, 2019, and annually thereafter, a summary report on the benchmarking of Group 1 covered property and Group 2 covered property, including an assessment of compliance rates, an assessment of accuracy and issues affecting accuracy, summary water and energy consumption statistics, and trends observed.

In no event shall any Commissioner's summary report, mandated by this subsection, include a covered property's ENERGY STAR score without the owner's consent.

C. All reported benchmarking information and data on a covered property obtained from any benchmarking submittal, including any ENERGY STAR score, shall be available to the public, without restriction, unless the owner specifically requests confidentiality and is able to demonstrate to the satisfaction of the Commissioner that the release of such information would divulge confidential information that is otherwise protected from disclosure by law. Any such request shall state, with specificity, the source of law giving rise to the purported disclosure protection.

D. The City may provide non-anonymized data from benchmarking submissions to any utility serving a covered building or to any federal, state, or City-managed energy efficiency program, provided that the data will be used only for purposes of targeting incentives provided through energy efficiency programs, and provided that the City has first obtained the covered building owner's written or electronic permission to share the data with the utility or energy efficiency program. Where the building owner's permission can be granted electronically through acceptance of a default option, the City shall provide a clearly delineated option for owners of covered buildings to choose to opt out of granting this permission.

E. The City may disclose data from benchmarking submissions to a third party for academic or other noncommercial research purposes provided that such data is anonymized.

F. The City may provide non-anonymized benchmarking data to any utility serving a covered building or to any federal, state, or City-managed energy efficiency program, provided that the data will be used only for purposes of targeting incentives provided through energy efficiency programs, and provided that the City has first obtained the covered building owner's written or electronic permission to share the data with the utility or energy efficiency program. Where the building owner's permission can be granted electronically through acceptance of a default option, the City shall provide a clearly delineated option for owners of covered buildings to choose to opt out of granting this permission.

G. All third parties receiving anonymized or non-anonymized data from benchmarking submissions shall sign a non-disclosure agreement with the City stipulating terms for acceptable use of the data, including assurances that such data shall not be disclosed to other entities, before receiving such data. (1994 C., § 25.70.040; Ord. No. 70474, § 4, 2-16-2017)

25.70.050 Maintenance of Records.

A. Owners of covered property shall maintain records that are necessary for demonstrating compliance with this article, including, but not limited to, the energy and water bills and any reports or forms received from tenants and utilities. All such records shall be preserved for a period of three years from the applicable benchmarking submission date. At the request of the Commissioner, such records shall be made available for inspection and audit by the Commissioner.

B. When a covered property changes ownership, the previous owner shall provide the new owner all information for the months of the calendar year being benchmarked during the time the previous owner was still in possession of the property. (1994 C., § 25.70.050; Ord. No. 70474, § 5, 2-16-2017)

25.70.060 Violations and Enforcement.

A. *Ordinance Violation.* Any person who fails to comply with any benchmarking information submittal requirement mandated by this chapter or misrepresents any material fact in a document or report prepared as required by this chapter shall result in the following:

1. A written warning shall be issued by the Commissioner to any owner who fails to submit any required benchmarking information. Such warning letter shall be effective on the date of issuance and shall be mailed to the owner's last known address as determined by county record.

2. In the event required benchmarking information is not reported within sixty (60) days of the date the written warning is issued, said failure shall constitute an offense and shall be punishable, upon conviction, by a fine of not less than $50.00 and not more than $200.00. For any continuing violation of this article, each day of the violation shall be considered a separate offense. In no event shall the cumulative fine imposed hereunder exceed $1,000.00 annually.

B. *Suit Additional to Other Remedies.* If any person violates the provisions of this article, the City attorney may commence an action for legal or equitable relief in any court with appropriate jurisdiction. A petition for legal or equitable relief shall not be a bar against, or a prerequisite for, taking any other action against any person.

C. *Nonexclusively.* The remedies provided for in this article are not exclusive. The Commissioner may take any, all, or combination of these actions, or any other action available at law, against any person. (1994 C., § 25.70.060; Ord. No. 70474, § 6, 2-16-2017)

25.70.070 Rules.

The Commissioner may promulgate such rules as are necessary to carry out the provisions of this chapter. (1994 C., § 25.70.070; Ord. No. 70474, § 7, 2-16-2017)

Chapter 25.71

BUILDING ENERGY PERFORMANCE STANDARDS

Sections:

25.71.010 Purpose and policy.
25.71.020 Definitions.
25.71.030 Applicability.
25.71.040 Standards and compliance.
25.71.050 Office of building performance—Creation and purpose.
25.71.060 Building energy improvement board.
25.71.070 Appeals.
25.71.080 Rules.
25.71.090 Maintenance of records.
25.71.100 Violations and enforcement.

25.71.010 Purpose and policy.

The purpose of this chapter is the establishment of building energy performance standards for municipal, commercial, institutional, and multi-family properties that have a total gross floor area of 50,000 square feet or above within the City. (Ord. No. 71132, § 1, 5-4-2020.)

25.71.020 Definitions.

Unless the context specifically indicates otherwise, the meaning of terms used in this chapter shall be as follows:

A. "Commissioner" means the City of St. Louis Building Commissioner, or the Commissioner's designee;

B. "Owner" means any of the following:

1. An individual or entity possessing title to a covered property;

2. The net lessee in the case of an entire property subject to a triple net lease with a term of 10 years or more;

3. The board in the case of a condominium;

4. The board in the case of a cooperative apartment corporation; or

5. An agent authorized, in writing on file with the Commissioner, to act on behalf of any of the above.

C. "Person" means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. This definition includes all federal, state or local governmental entities.

D. "Condominium" means a site that combines separate ownership of individual units with common ownership of other elements such as common areas.

E. "Covered property" means a building that is greater than or equal to 50,000 gross square feet in total gross floor area. The term "covered property" shall not include any building owned by the State of Missouri or the federal government.

F. "Energy" means electricity, natural gas, steam, hot water, chilled water, biomass or fuel oil to the

covered property or generated on-site for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses captured by the ENERGY STAR Portfolio Manager.

G. "Site energy use" means the annual amount of all the energy a property consumes on-site as calculated by ENERGY STAR Portfolio Manager or an alternative system or tool approved by the Building Commissioner.

H. "Site energy use intensity (EUI)" means the site energy use divided by the gross floor area of the property as calculated by ENERGY STAR Portfolio Manager or an alternative system or tool approved by the Building Commissioner.

I. "Weather normalized site energy" means the energy use a property would have consumed during 30-year average weather conditions as calculated by ENERGY STAR Portfolio Manager or an alternative system or tool approved by the Building Commissioner.

J. "ENERGY STAR Portfolio Manager" means the web-based tool developed and maintained by the U.S. Environmental Protection Agency to track and assess the relative energy performance of buildings nationwide. An alternative system or tool may be approved by the Commissioner.

K. "Financial hardship" (of a property) means a property that:

1. Had arrears of property taxes or water or refuse charges that resulted in the property's inclusion, within the prior 2 years, on the city's annual tax lien sale list; or

2. Has a court appointed receiver in control of the asset due to financial distress; or

3. Is owned by a financial institution through default by the borrower; or

4. Has been acquired by a deed in lieu of foreclosure; or

5. Has a senior mortgage subject to a notice of default.

L. "Communications infrastructure" means facilities used to house equipment to deliver electronic communications services, including voice, broadband, data and video services.

M. "Gross floor area" means the total property square footage, as measured between the exterior walls of the building(s). This includes all finished areas inside the building(s) including supporting areas.

N. "Qualified affordable building(s)" means a building in which a majority of the households in the building make less than eighty percent of the Area Median Income for the City of St. Louis. (Ord. No. 71132, § 2, 5-4-2020.)

25.71.030 Applicability.

This chapter shall apply to municipal, commercial, institutional, and multi-family buildings 50,000 square feet or above within the City of St. Louis.

A. "Covered property" means a building that is greater than or equal to 50,000 gross square feet in total gross floor area; including:

1. A building that is owned by the City; or for which the City regularly pays all or a majority of the annual energy bills.

2. A building that is held in the condominium form or ownership that is governed by the same board, and that is greater than or equal to 50,000 gross square feet in total gross floor area. (Ord. No. 71132, § 3, 5-4-2020.)

25.71.040 Standards and compliance.

The City shall establish energy performance standards for covered buildings in the City. The following standards regarding building energy performance shall be for property types outlined in Applicability Section:

A. Standards for each property type will be set by May 4, 2021 through a stakeholder engagement process overseen by the Building Energy Improvement Board. Standards will be revised no later than every four years. The chief performance metric will be site energy use intensity (EUI). Standards will be set no lower than the 65th percentile by property type such that at least 65% of the buildings of that property type have a higher EUI.

1. The Building Division shall establish data verification requirements for each four-year compliance cycle.

2. The building energy performance standard shall be no lower than the 65th percentile site energy use intensity (EUI) for buildings of each property type collected through benchmarking reporting from ENERGY STAR Portfolio Manager.

3. To the extent practical, target site EUIs by property type will be based on local buildings' benchmarking data.

4. If building owners believe that due to unusual circumstances they will be unable to meet the building energy performance standards established by the City

by the deadline or exceptionally burdened by doing so, then they may propose and present an alternative compliance plan for consideration by the Building Energy Improvement Board for approval.

B. Building owners will comply through the existing benchmarking reporting process, which uses ENERGY STAR Portfolio Manager as the reporting tool.

C. Compliance cycles.

1. Performance standards will be set by May 4, 2021 by the Building Energy Improvement Board and revised every four years thereafter. Following every compliance cycle, there shall be a period of time of up to one year between each compliance cycle to allow the Building Energy Improvement Board time to reevaluate and to update the building energy performance standards. The first Building Energy Performance standards shall be approved no later than May 4, 2021.

2. First Building Energy Performance Standard compliance cycle shall begin on the day they are approved and end four years after that day. The compliance cycle will end no later than May 1, 2025.

(a) Except that qualified affordable building(s) and houses of worship shall comply with a compliance cycle of six years in order to provide owners with adequate time to work through considerable financing and capacity constraints. The compliance cycle shall begin the day they are approved and end six years after that day. The compliance cycle will end no later than May 4, 2027.

D. *Compliance pathways.*

1. Buildings that meet their respective building energy performance standard at the end of the four-year compliance cycle are compliant.

2. Buildings performing below the building energy performance standard or if building owners believe that due to unusual circumstances they will be unable to meet the building energy performance standards established by the City by the deadline or exceptionally burdened by doing so, then they may conduct the following:

(a) Presenting an alternative compliance plan for consideration and approval by the Building Energy Improvement Board. Implementation of any alternative compliance plans must begin no later than May 4, 2024.

(i) Alternative compliance plans shall be made private between the Board and the building owner and/or building owner's authorized representatives.

(b) Make an alternative compliance payment to the Building Division or daily ordinance violation as determined by the Building Commissioner.

E. Building Energy Improvement Board will create a pathway for buildings that benefit from deep energy improvements and achieve energy performance well beyond the required performance standard to be in compliance for 15 years. (Ord. No. 71132, § 4, 5-4-2020.)

25.71.050 Office of Building Performance—Creation and purpose.

The office of Building Performance is hereby established within the Building Division. The mission of this office will be to oversee the implementation, compliance and enforcement of the existing Building Energy Awareness ordinance (#70474), the Building Energy Performance Standards ordinance, and any future ordinances related to building energy improvement and performance. (Ord. No. 71132, § 5, 5-4-2020.)

25.71.060 Building Energy Improvement Board.

There is hereby established a Building Energy Improvement Board (hereinafter, "Building Energy Improvement Board" or "Board").

A. *Board Composition and Roles.*

1. The Board shall consist of nine members appointed by the Mayor. At least six members of the Board shall be residents of the City of Saint Louis and three members shall be residents of the St. Louis region.

2. Within 60 days of the applicability date of this title, the Building Energy Improvement Board shall be established, which shall:

(a) Establish and approve building energy performance standards by property type for each compliance cycle, as recommended by the Building Division;

(b) Review and, as necessary, recommend amendments to proposed regulations issued by the Building Division;

(c) Recommend complementary programs or policies;

(d) Review appeals regarding any action(s) taken due to this chapter and the Building Energy Awareness Ordinance (#70474)

(e) Provide sample alternative compliance plans to meet building energy performance standards

(f) Review alternative compliance plans submitted and make recommendations for approval or denial by the Building Division.

3. The Building Energy Improvement Board shall be comprised of representatives, or their designees, from the following, but not limited to, possible entities:

(a) Building Division;

(b) Local utilities;

(c) A provider of energy efficiency or renewable energy services;

(d) Affordable and/or multi-family housing representative;

(e) Affordable housing tenant;

(f) Labor;

(g) Technical building design professional(s);

(h) Environmental non-profit;

(i) Commercial building;

(j) Engineering.

4. A technical sub-committee shall also be established and charged with reviewing and acting on alternative compliance plans and would consist of at least 80 percent of technical experts. Members of the technical sub-committee may also be members of the full Building Energy Improvement Board. The decision(s) of the sub-committee can be appealed to the full Building Energy Improvement Board.

5. *Alternates to Board.* The alternates shall have all power, protection, and stipends as the regular board members in accordance with Civil Service protection. The alternates shall be appointed by the Mayor for four-year terms.

6. *Term of Office.* All appointments and subsequent appointments shall be for a term of 4 years and shall expire on the anniversary of the date of the original term, except appointments to fill vacancies which shall be for the unexpired term. Terms for first appointments will be staggered. Members whose appointed terms have expired shall be permitted to continue to serve until reappointed or replaced by a new appointee.

7. *Procedures.* The Board shall elect one of its members as chair who shall serve as such during the remainder of the calendar year or until a successor is elected. The Board shall from time to time adopt rules and regulations as shall be reasonably necessary to govern its procedure and to carry into effect the provisions of this chapter.

(a) These rules and regulations shall be available for review at the office of the Secretary to the Board during normal working hours. It shall be unlawful for any appellant or appellant's representative to contact any member of the board on any matter that is pending or scheduled to be heard by the Board.

8. *Compensation.* The Building Energy Improvement Board members and technical sub-committee members shall be compensated for services rendered on a per meeting basis as established by rulemaking and subject to budgeted funds availability. Fifty dollars ($50) shall be paid to each member present on a per meeting basis. Budgeted funds will be paid from the Building Division.

B. *Meetings; Witnesses; Minutes.*

1. Meetings of the Board shall be held at the call of the chairman and at such other times as the Board shall permit by its rules. The chair, or in the chair's absence, the acting chair shall administer oaths. The Board shall act by a majority vote and a quorum shall consist of at least 5 members.

2. All hearings shall be conducted in accordance with the provisions of the Missouri Administrative Procedure Act. All testimony shall be given under oath or affirmation. The Board Chair or Secretary to the Board may issue subpoenas to secure the attendance and testimony of relevant witnesses and the production of relevant documents.

3. The Board shall keep minutes of its proceedings showing the vote of each member on each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations of witnesses and other official acts. Transcripts of hearings shall be permitted to be kept in the custody of the court reporter and need not be transcribed unless requested. The party requesting the transcripts shall pay all costs of such transcripts required including a file copy for the board, one for the Building Division, and one for the Board's legal staff.

C. *Exemptions.*

1. The Board may grant an extension of the performance standard submission date or an exemption from the building energy performance standard requirement to the owner of a covered property that submits a request, together with documentation, in a form prescribed by the Board's rule, at least 90 days prior to any building energy performance standard submission deadline, if the appellant meets any of the following criteria:

(a) A demolition permit was issued or is demolition is planned during a compliance cycle, provided that demolition work has commenced and energy-related systems have been significantly compromised.

(b) The Building Energy Improvement Board determines that due to special circumstances unique to the applicant's facility and not based on a condition

caused by actions of the applicant, strict compliance with provisions of this chapter would cause financial hardship or would not be in the public interest.

(c) The property is primarily used for manufacturing or other industrial purposes for which benchmarking results would not meaningfully reflect covered property energy use characteristics due to the intensive use of process energy.

(d) The property is primarily used for communications infrastructure.

(e) The property is owned by the State of Missouri or the federal government.

2. Any owner requesting such an extension or exemption shall provide the Board any and all documentation requested to substantiate the request or otherwise assist the Board in the extension or exemption determination. Any extension or exemption granted shall be limited to the building energy performance standard submission for which the request was made and shall not extend to past or future submittals. (Ord. No. 71132, § 6, 5-4-2020.)

25.71.070 Appeals.

Appeals of any decision of the Commissioner regarding any person's failure to meet any required building energy performance standard can be appealed to the Building Energy Improvement Board.

A. *Filing Date of Appeal.* Any allowable appeal pursuant to this chapter shall be filed within thirty (30) calendar days after the decision of the building official that is being appealed.

B. *Manner and Fee for Filing Appeals.* Appeals shall be taken by filing with the Secretary to the Board a notice of appeal on such forms as prescribed by the Board specifying the grounds thereof. The Board Secretary shall immediately transmit to the Board such notice and all papers constituting the record upon which the action 12 appealed from is taken. The notice of appeal shall be accompanied by a fee of $100.

C. *Multiple Appeals.* In the event that more than one building, structure, or premises owned by the same person, firm, or corporation has been cited for exactly the same violation and the owner has filed an appeal with the board disputing the same citation, the appellant shall be permitted to file one appeal covering all said buildings, structures, or premises and be charged one appeal fee. The decision rendered by the Board shall apply to all buildings, structures, or premises involved in the appeal.

D. *Board Hearings; Notifications.* After an appeal has been filed, the Secretary to the Board shall place the appeal on a Board hearing agenda and the appellant shall be notified in writing by certified mail prescribing the time, date, and location of the hearing not less than seven days prior to said hearing. Such hearing shall be held within a reasonable time after the filing of the notice of appeal, depending on the scheduling of other appeals.

E. *Appeals From Decisions of the Board.* Any person(s) jointly or severally aggrieved by the decision of the Energy Performance Standards Board shall be entitled to judicial review of the decision rendered by the Board as provided in the Administrative Procedure and Review Act of the State of Missouri, being Sections 536.100 - 536.140 of the Revised Statutes of Missouri.

F. *Hearing Officer.* The Building Energy Improvement Board shall have the right to appoint a hearing officer to hear and render a decision on any appeal filed with the Board.

The hearing officer shall be an attorney and on an approved list of attorneys who have administrative law experience. The Director of Public Safety shall compile and maintain said list. The hearing officer shall have such rights, responsibilities, and duties as the Building Energy Improvement Board and the appellants shall have the same rights as an appellant appearing before the Building Energy Improvement Board, including the right to appeal pursuant to Missouri's Administrative Procedure and Review Act. (Ord. No. 71132, § 7, 5-4-2020.)

25.71.080 Rules.

The Commissioner may promulgate such rules as are necessary to carry out the provisions of this chapter. (Ord. No. 71132, § 8, 5-8-2020.)

25.71.090 Maintenance of records.

Owners of covered property shall maintain records that are necessary for demonstrating compliance with this chapter, including but not limited to, the energy and water bills and any reports or forms received from tenants and utilities. All such records shall be preserved for a period of 7 years from the applicable submission date. At the request of the Commissioner, such records shall be made available for inspection and audit by the Commissioner.

When a covered property changes ownership, the previous owner shall provide the new owner all information for the years complying with the energy perfor-

mance standard during the time the previous owner was still in possession of the property. (Ord. No. 71132, § 11, 5-4-2020.)

25.71.100 Violations and enforcement.

Ordinance violation. Any person who fails to comply with any building energy performance information submittal requirement mandated by this chapter or misrepresents any material fact in a document or report prepared as required by this chapter shall result in the following:

A. Written warning shall be issued by the Commissioner to any owner who fails to submit any required building energy performance information. Such warning letter shall be effective on the date of issuance and shall be mailed to the owner's last known address as determined by county record.

B. In the event required benchmarking and data verification information is not reported within 60 days of the date the written warning is issued, said failure shall constitute an offense and shall be punishable, upon conviction, a fine not less than one dollar nor more than five hundred dollars or by imprisonment for not more than ninety days or by both such fine and imprisonment. Each day of the violation continues shall constitute a separate offense.

C. *Additional available remedies.* If any person violates the provisions of this chapter, the City Counselor's Office may initiate an action for legal or equitable relief in any court with appropriate jurisdiction. A petition for legal or equitable relief shall not be a bar against, or a prerequisite for, taking any other action against any person.

D. *Nonexclusivity.* The remedies provided for in this chapter are not exclusive. The Commissioner may take any, all, or combination of these actions, or any other action available at law, against any person. (Ord. No. 71132, § 12, 5-4-2020.)

Chapter 25.74

UTILITY COORDINATION

Editor's Note:

Ord. No. 71943, § 1, approved December 24, 2024, amended the Code by repealing former Ch. 25.74, §§ 25.74.010—25.74.030, and adding a new Ch. 25.74. Former Ch. 25.74 pertained to construction and excavation, and derived from Ord. No. 70924, §§ 1—3, approved February 19, 2019.

Sections:

25.74.010 Definitions.
25.74.020 Coordination.
25.74.030 Moratorium on utility work.
25.74.040 Responsibility of repair.
25.74.050 Adoption of standards.
25.74.060 Fees associated with permitting.
25.74.070 Penalties for non-compliance.

25.74.010 Definitions.

All terms outlined in this section shall have the meaning herein described unless otherwise directly stated in the following ordinance.

Asphalt ramping is the process of placing cold patch asphalt along the edges of a steel street plate to establish a more continuous surface for right-of-way users to traverse.

Board of Public Service as referenced in this chapter shall refer to the full Board of Public Service.

City shall mean the City of St. Louis, Missouri.

Critical infrastructure shall mean electrical, water, sewer, gas, or other utility networks critical to public safety, communication, and transportation networks.

Emergency repair shall have the same meaning as described in RSMo 67.1830(3).

GIS map shall mean geographic information system map, a computer-based tool used to store, visualize, and interpret geographic data.

Keyhole excavation is defined as using a coring device to cut circular hole with a maximum diameter of twelve (12) inches through the roadway pavement, sidewalk, or surface to allow the intact core of pavement to be extracted.

Permanent repair shall mean any repair that is reasonably believed to not require additional revision work and meets all applicable standards adopted by the City of St. Louis.

Streets Department shall refer to the currently existing department tasked with Street Maintenance until such time as its successor the "Department of Transportation" becomes effective.

Temporary repair shall mean any temporary measures placed while waiting for materials or weather to facilitate proper permanent repairs.

Utility provider shall have the same meaning as prescribed to "public utility" in RSMo 67.1830(9). (Ord. No. 71943, § 2, 12-24-2024.)

25.74.020 Coordination.

1. The Streets Department shall, in consultation with the Board of Public Service, identify the scope and parameters of information required to be included in a long-term utility work plan and provide those instructions to all relevant utility providers within sixty (60) days after passage of this bill.

2. Utility providers operating in the City of St. Louis shall:

a. Perform all necessary, planned utility work in accordance with the adopted standards outlined in Section 25.74.050 of this chapter; and

b. Provide a long-term utility work plan, pursuant to Subsection 1 of this Section, to the Streets Department by January 1 of each calendar year.

i. Failure of utility providers to provide their long-term utility work plan by January 1 of each calendar year shall be cause for the denial of any work permit within city limits of the City of St. Louis, until such plans have been acquired by the City.

ii. No City department shall issue a permit or enter into a contract related to right-of-way work to a utility provider who is in violation of this section. This provision shall not limit issuance of permits in cases of work necessary for preservation of Public Health, Safety, or other emergencies as approved by the Board of Public Service.

3. The Streets Department shall, in partnership with Information Technology Services Agency ("ITSA"), the Board of Public Service ("BPS"), and the Planning and Urban Design Agency ("PDA"), develop and maintain a GIS map of planned City right-of-way maintenance, including but not limited to construction, reconstruction, and repair overlaid with long-term utility work plans received from utility providers by January 1 of each calendar year.

a. The Streets Department shall solicit updates of the utility providers' long-term utility work plan(s) quarterly for the determination of project(s) completion, delay, or rescheduling and shall update the GIS map accordingly.

4. The Streets Department shall, in consultation with the Board of Public Service, develop and make public a Citywide paving and sidewalk plan by July 1 of each calendar year. Such paving and sidewalk plan shall include but shall not be limited to plans for any City repaving, reconstruction, and basic roadway improvements for the following fiscal year, including anticipated project timelines. The Streets Department and Board of Public Service shall further develop and make public a list of completed roadway restoration work from the previous five (5) years.

(Ord. No. 71943, § 3, 12-24-2024.)

25.74.030 Moratorium on utility work.

1. There shall be a moratorium on utility construction for a term of five (5) years immediately following any City repaving, reconstruction, or other complete right-of-way project.

a. This section shall not include emergency repairs as defined in this chapter. All excavations made and materials placed under emergency conditions shall be considered temporary repairs. Utility Providers shall make permanent repairs that meet adopted standards within eight (8) weeks from the issuance of the excavation permit in connection with an emergency repair (see Exhibit A to Ord. No. 71943, proposed updated excavation permit language). Utility providers may submit a written request to the Streets Department for an extension due to weather conditions or extenuating circumstances beyond their control. This section shall, regardless of the age of the pavement, not be construed as to hinder work for the following reasons: new construction, establishing new service, to mitigate any interruption of essential service, or any work that is mandated by City, state, or federal law.

b. Upon denial of an application for a right-of-work permit due to a violation of the five (5) year moratorium outlined in this Section, the applicant shall, if applicable, submit evidence of emergency conditions as defined in Section 25.74.030, subsection a.

If the Board of Public Service issues a permit under emergency conditions, The Board of Public Service, in coordination with the Streets Department, may include further expectations (see Exhibit B, as provided by Nashville's Department of Transportation) of right-of-way restoration based on their project.

(Ord. No. 71943, § 4, 12-24-2024.)

25.74.040 Responsibility of repair.

Utility providers shall have sole responsibility of the repair of the right-of-way after excavation, and must make repairs in alignment with the adopted standards of the City of St. Louis as outlined in Section 25.74.050 of this chapter, unless Utility Providers are able to perform work within one (1) year prior to scheduled City repaving, reconstruction, or other complete right-of-way project in the same location, in which

case the utility provider shall restore the right-of-way with appropriate backfill materials for roadway or right-of-way type (asphalt patch vs. concrete joint to joint or full lane width repairs) and patch that location with appropriate materials (asphalt patch vs. concrete joint to joint or full lane width repairs), including street markings like crosswalks or bike lanes; but shall not be required to repave the entire block or combine patches. (Ord. No. 71943, § 5, 12-24-2024.)

25.74.050 Adoption of standards.

The Board of Public Service shall adopt the same standards for repair and reconstruction related to excavation as St. Louis County. Upon issuance of an excavation permit, the Streets Department shall provide these standards to the applicant in a format similar to Exhibit C to Ord. No. 71943. These standards shall include, but shall not be limited to, the following provisions:

1. For restoration of pavement that is five (5) years and older, joint to joint or full lane width, as appropriate, of a right-of-way cut must be restored to adopted standards. Exceptions for keyhole excavations may be made on a case-by-case basis by the Streets Department.

2. Backfilling material under a patch must meet adopted standards.

3. The full block shall be repaved if more than twenty (20) percent of the block is to be patched in non-continuous sites along the block, but only that work location shall be repaved if twenty (20) percent is in a continuous location.

4. If the work occurs solely on one (1) side of the street or in one (1) lane, but travels down block for longer than twenty (20) percent of the block, the full lane shall be repaved joint-to-joint or full lane width, as appropriate, for the type of roadway.

5. Steel plates shall be pinned in place. Asphalt ramps shall be required any time a steel plate is on the roadway and not within a closed lane of traffic. This shall apply to all lanes of traffic (bike lanes, parking lanes, and driving lanes) and sidewalks. Asphalt ramps shall be maintained as needed during the duration of utility work.

6. Patches that are created by the same utility provider that are ten (10) feet or less apart shall be combined into one (1) larger patch, exceptions for keyhole excavations may be made on a case-by-case basis by the Streets Department.

7. Any impacted road fixtures and right-of-way shall be restored in-kind and to their original condition, to the extent possible. If a road fixture is made of a certain material, the same material shall be used for the restoration.

a. This requirement applies to all affected road fixtures and rights-of-way, including, but not limited to, curbs, sidewalks, and medians.

8. All concrete cuts used for restoration shall be restored joint-to-joint.

(Ord. No. 71943, § 6, 12-24-2024.)

25.74.060 Fees associated with permitting.

Except as otherwise provided by state law applicants for an excavation permit shall be subject to the following fees and conditions:

Applicants for an excavation permit must provide:

1. A valid business license with the City of St. Louis;

2. Plumbing related excavations will require a plumbing permit from the Building Division;

3. Non-plumbing related excavations will require a permit from the Board of Public Service;

4. A one thousand five-hundred-dollar ($1,500.00) deposit, refundable one (1) year after issuance of the permit and after a final inspection;

5. A ten-thousand-dollar ($10,000.00) surety bond;

6. Five-hundred thousand ($500,000.00) in liability insurance, naming the City of St. Louis as additionally insured.

Fees associated with cuts under twenty (20) feet in length:

1. One-hundred twenty-five dollars ($125.00) per repair, permit good or thirty (30) days from start of work.

Fees associated with cutes over twenty (20) feet in length:

1. One hundred twenty-five dollars ($125.00) per block;

2. Twenty dollars ($20.00) per day per crew inspection fee for day the excavation is open.

Excavation permit allows for blocking one (1) lane of roadway. If additional lanes need to be blocked, there will be additional fees of thirty dollars ($30.00) per days for a traffic lane and twenty dollars ($20.00) per day for a parking lane.

If meters will be blocked, the following meter rental fees apply excluding Sundays and City holidays:

1. One time twenty-five dollar ($25.00) application fee.

2. Ten dollars ($10.00) per meter per day.

(Ord. No. 71943, § 7, 12-24-2024.)

25.74.070 Penalties for non-compliance.

At the sole discretion of the Director of Streets or their designee, upon the determination that any contractor is found to be in violation of any provision of these sections, that contractor shall forfeit their deposit if the violation is not rectified within thirty (30) calendar days. The Director of Streets shall provide this notice to the contractor in writing. Three (3) such violations shall be cause for debarment and will prohibit that contractor from receiving excavation permits within the City of St. Louis.

(Ord. No. 71943, § 8, 12-24-2024.)

Chapter 25.76

SMALL WIRELESS FACILITIES AND MICRO WIRELESS FACILITIES

Sections:

25.76.010 Title and intent.

25.76.020 Definitions.

25.76.030 Permits for wireless facilities outside the right-of-way.

25.76.010 Title and intent.

Adding a new chapter to Title 25—Buildings and Construction—to be known as "Small Facilities and Micro Wireless Facilities." The purpose of this chapter is to encourage and streamline the deployment of small wireless and micro wireless facilities in the City and to help ensure that robust and dependable wireless radio-based communication services and networks are available throughout the City, consistent with state and federal law.

(Ord. No. 70917, § 1, 2-14-2019.)

25.76.020 Definitions.

A. *Definitions and Usage—General.* For the purposes of this Chapter, the following terms, phrases, words, and abbreviations shall have the meanings given herein, unless otherwise expressly stated. When not inconsistent with the context, words used in the present tense include the future tense and vice versa, words in the plural number include the singular number and vice versa, and masculine gender includes the feminine gender and vice versa. The words "shall" and "will" are mandatory, and "may" is permissive. Unless otherwise expressly stated or contrary to the context, those terms, phrases, words, and abbreviations not defined herein shall be given the meaning set forth in RSMo 67.5110—67.5121, and if not defined therein, the City Code, and, if not defined therein, their common and ordinary meaning.

B. "Antenna." Communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services.

C. "Applicable codes." Include any City codes incorporating uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization or local amendments to such codes enacted to prevent physical property damage or reasonably foreseeable injury to persons.

D. "Applicant." Any person who submits an application and is a wireless provider.

E. "Application." A request submitted by an applicant to the City for a permit to collocate small wireless facilities on a utility pole or wireless support Structure, or to approve the installation, modification or replacement of a utility pole.

F. "Collocate" or "collocation." To install, mount, maintain, modify, operate, or replace small wireless facilities on or immediately adjacent to a wireless support structure or utility pole, provided that the small wireless facility antenna is located on the wireless support structure or utility pole.

G. "Communications facility." The set of equipment and network components, including wires, cables, and associated facilities used by a cable operator, as defined in 47 U.S.C. Section 522(5); a telecommunications carrier, as defined in 47 U.S.C. Section 153(51); a provider of information service, as defined in 47 U.S.C. Section 153(24); or a wireless services provider; to provide communications services, including cable service, as defined in 47 U.S.C. Section 522(6); telecommunications service, as defined in 47 U.S.C. Section 153(53); and information service, as defined in 47 U.S.C. Section 153(24); wireless communications service; or other one-way or two-way communications service.

H. "Communications service provider." A cable operator, as defined in 47 U.S.C. Section 522(5); a provider of information service, as defined in 47 U.S.C.

Section 153(24); a telecommunications carrier, as defined in 47 U.S.C. Section 152(51); or a wireless provider;

I. "Decorative pole." A city utility pole that is specially designed and placed for aesthetic purposes;

J. "Fee." A one-time, nonrecurring charge;

K. "Permit." A written authorization required by the city to perform an action or initiate, continue or complete a project;

L. "Person." An individual, corporation, limited liability company, partnership, association, trust, or other entity or organization, including an authority.

M. "Rate." A recurring charge.

N. "Right-of-way." The area on, below, or above a public roadway, highway, street, sidewalk, alley, or similar property used for public travel, but not including a federal interstate highway, railroad right-of-way or private easement.

O. "Small wireless facility." A wireless facility that meets both of the following qualifications:

1. Each wireless provider's antenna could fit within an enclosure of no more than six cubic feet in volume; and

2. All other equipment associated with the wireless facility, whether ground or pole mounted, is cumulatively no more than twenty-eight (28) cubic feet in volume, provided that no single piece of equipment on the utility pole shall exceed nine (9) cubic feet in volume; and no single piece of ground mounted equipment shall exceed fifteen (15) cubic feet in volume, exclusive of equipment by an electric utility or municipal electric utility to power the small wireless facility.

The following types of associated ancillary equipment shall not be included in the calculation of equipment volume: electric meter, concealment elements, telecommunications demarcation box, grounding equipment, power transfer switch, cut-off switch, and vertical cable runs and related conduit for the connection of power and other services.

P. "Stealth." Integrated as an architectural feature of a structure or that is designed to camouflage or conceal the presence of the wireless facility or antenna so that the purpose of the wireless facility or antenna is not readily apparent to a casual observer however, such term shall not include wireless support structures, electric transmission structures, or break-away poles owned by the state Highways and Transportation Commission.

Q. "Utility Pole." A pole or similar structure that is or may be used in whole or in part by or for wireline communications, electric distribution, lighting, traffic control, signage, or a similar function, or for the collocation of small wireless facilities.

R. "Wireless facility." Equipment at a fixed location that enables wireless communications between user equipment and a communications network, including equipment associated with wireless communications and radio transceivers, antennas, coaxial or fiber-optic cable, regular and backup power supplies and comparable equipment, regardless of technological configuration. The term includes small wireless facilities. The term does not include:

1. The structure or improvements on, under, or within which the equipment is collocated;

2. Coaxial or fiber-optic cable between wireless support structures or utility poles;

3. Coaxial or fiber-optic cable not directly associated with a particular small wireless facility; or

4. A wireline backhaul facility.

S. "Wireless infrastructure provider." Any person, including a person authorized to provide telecommunications service in the state, that builds or installs wireless communication transmission equipment or wireless facilities but that is not a wireless services provider.

T. "Wireless provider." A wireless infrastructure provider or a wireless services provider.

U. "Wireless services." Any services using licensed or unlicensed spectrum, including the use of WiFi, whether at a fixed location or mobile, provided to the public using wireless facilities.

V. "Wireless services provider." A person who provides wireless services.

W. "Wireless support structure." An existing structure, such as a monopole or tower, whether guyed or self-supporting, designed to support or capable of supporting wireless facilities; an existing or proposed billboard; an existing or proposed building; or other existing or proposed structure capable of supporting wireless facilities, other than a structure designed solely for the collocation of small wireless facilities. Such term shall not include a utility pole.

X. "Wireline backhaul facility." A physical transmission path, all or part of which is within the right-of-way, used for the transport of communication data by wire from a wireless facility to a network.

(Ord. No. 70917, § 2, 2-14-2019.)

25.76.030 Permits for wireless facilities outside the right-of-way.

The provisions of this section shall apply to the permitting of small wireless facilities and micro wireless facilities to be installed by or for a wireless provider outside the right-of-way. Unless otherwise indicated, nothing in this chapter abrogates existing requirements for the location or collocation of a wireless facility that is not a small or micro wireless facility.

A. Wireless providers or their agents shall apply for and obtain a permit pursuant to all applicable codes to locate or collocate a small wireless facility or micro wireless facility. The permit application fee is set forth in the applicable codes. The city shall receive applications for, process and issue such permits subject to the following requirements.

(1) An applicant shall not be required to perform services or provide goods unrelated to the permit, such as in-kind contributions to the city, including reserving fiber, conduit, or pole space for the city;

(2) An applicant shall not be required to provide more information to obtain a permit than communications service providers that are not wireless providers, provided that an applicant shall include construction and engineering drawings and information demonstrating compliance with the criteria in subdivision (9) of this subsection and an attestation that the small wireless facility complies with the volumetric limitations set forth in the definition section for small wireless facilities;

(3) An applicant shall not be required to place small wireless facilities on any specific utility pole or category of poles or require multiple antenna systems on a single utility pole;

(4) There is no limit as to the placement of small wireless facilities by minimum horizontal separation distances;

(5) An applicant shall comply with reasonable, objective, and cost-effective concealment and stealth requirements as set forth by the regulations adopted by either the Board of Public Service or the Building Commissioner and safety requirements as provided herein provided that stealth concealment requirements are published in advance by the Board of Public Service or the Building Commissioner and are no more burdensome than those required as part of other telecommunications infrastructure deployments. If both the Board of Public Service and the Building Commissioner promulgate concealment regulations, then the Building Commissioner's regulations shall control for purposes of this chapter;

(6) An applicant that is not a wireless services provider shall provide evidence of agreements or plans demonstrating that the small wireless facilities will be operational for use by a wireless services provider within one (1) year after the permit issuance date, unless the City and the applicant agree to extend this period or if delay is caused by lack of commercial power or communications transport facilities to the site and the applicant notifies the City thereof. An applicant that is a wireless services provider shall provide the information required by this subdivision by attestation;

(7) Within fifteen (15) days of receiving an application, the City shall determine and notify the applicant in writing whether the application is complete. If an application is incomplete, the City shall specifically identify the missing information in writing. The processing deadline in subdivision (8) of this subsection shall be tolled from the time the City sends the notice of incompleteness to the time the applicant provides the missing information. That processing deadline may also be tolled by agreement of the applicant and the City;

(8) An application for collocation shall be processed on a nondiscriminatory basis and deemed approved if the City fails to approve or deny the application within forty-five (45) days of receipt of the application. An application for installation of a new, modified, or replacement utility pole outside the right-of-way and associated with a small wireless facility shall be processed on a nondiscriminatory basis and deemed approved if the City fails to approve or deny the application within sixty (60) days of receipt of the application;

(9) The City may deny a proposed collocation of a small wireless facility or installation, modification, or replacement of a utility pole outside the right-of- way only if the action proposed in the application could reasonably be expected to:

(a) Materially interfere with the safe operation of traffic control equipment or City-owned communications equipment;

(b) Materially interfere with sight lines or clear zones for transportation, pedestrians, or nonmotorized vehicles;

(c) Materially interfere with compliance with the Americans with Disabilities Act, 42 U.S.C. Sections 12101 to 12213, or similar federal or state standards regarding pedestrian access or movement;

(d) Materially obstruct or hinder the usual travel or public safety on the right-of-way;

(e) Materially obstruct the legal use of the right-of-way by the City, a utility, or other third party;

(f) Fail to comply with reasonable and nondiscriminatory spacing requirements of general application adopted by ordinance or regulations promulgated by the state highways and transportation commission that concern the location of ground mounted equipment and new utility poles, subject to wireless provider requests for exception or variance;

(g) Fail to comply with applicable codes, including nationally recognized engineering standards for utility poles or wireless support structures;

(h) Fail to comply with the reasonably objective and documented aesthetics of a decorative pole and the applicant does not agree to pay to match the applicable decorative elements; or

(i) Fail to comply with reasonable and nondiscriminatory undergrounding requirements contained in City ordinances as of January 1, 2018, or subsequently enacted for new developments, that require all new utility facilities in the area to be placed underground and prohibit the installation of new or the modification of existing utility poles in a right-of-way without prior approval, including by wireless provider requests for exception or variance;

(10) The City shall document the complete basis for a denial in writing, and send the documentation to the applicant with the communication denying an application. The applicant may cure the deficiencies identified by the City and resubmit the application within thirty (30) days of the denial without paying an additional application fee. The City shall approve or deny the revised application within thirty (30) days. Any subsequent review shall be limited to the deficiencies cited in the denial;

(11) Applications.

(a) An applicant may file a consolidated application and receive a single permit for the collocation of multiple small wireless facilities; provided, however, the denial of one (1) or more small wireless facilities in a consolidated application shall not delay processing of any other small wireless facilities in the same batch; and

(b) An application may include up to twenty (20) separate small wireless facilities, provided that they are for the same or materially same design of small wireless facility being collocated on the same or materially the same type of utility pole or wireless support structure, and geographically proximate. If the City receives individual applications for approval of more than fifty (50) small wireless facilities or consolidated applications for approval of more than seventy-five (75) small wireless facilities within a fourteen-day period, whether from a single applicant or multiple applicants, the City may, upon its own request, obtain an automatic thirty-day extension for any additional collocation or replacement or installation application submitted during that fourteen-day period or in the fourteen-day period immediately following the prior fourteen-day period. The City shall promptly communicate its request to each affected applicant. In rendering a decision on an application for multiple small wireless facilities, the City may approve the application as to certain individual small wireless facilities while denying it as to others based on applicable requirements and standards, including those identified in this subsection. The City's denial of any individual small wireless facility or subset of small wireless facilities within an application shall not be a basis to deny the application as a whole; notwithstanding the foregoing, the FCC "shot clock" review periods set forth in 47 CFR 1.6003 shall not be exceeded regardless of the number of "batched" applications.

(12) Installation or collocation for which a permit is granted under this Chapter shall be completed within one year after the permit issuance date unless the City and the applicant agree to extend this period, or the applicant notifies the City that the delay is caused by a lack of commercial power or communications transport facilities to the site.

(13) Approval of an application authorizes the applicant to:

(a) Undertake the installation or collocation; and

(b) Operate and maintain the small wireless facilities and any associated utility pole covered by the permit for a period of ten (10) years, which shall be renewed for equivalent durations so long as the facilities and poles remain in compliance with the criteria set forth in subdivision (9) of this section, unless the applicant and the City agree to an extension term of less than ten (10) years. The provisions of this paragraph shall be subject to the right of the City to require, upon adequate notice and at the facility owner's own expense, relocation of facilities as may be needed in the interest of public safety and convenience, and the applicant's right to terminate at any time;

(14) In determining whether sufficient capacity exists to accommodate the attachment of a new small

wireless facility, the City shall take into account that any grant of access hereunder shall be subject to a reservation to reclaim such space, when and if needed, to meet the pole owner's core utility purpose or documented plan projected at the time of the application pursuant to a bona fide development plan; and

(15) In emergency circumstances that result from a natural disaster or accident, the City may require the owner or operator of a wireless facility to immediately remove such facility if the wireless facility is obstructing traffic or causing a hazard on the City's roadway. In the event that the owner or operator of the wireless facility is unable to immediately remove the wireless facility, the City may remove the wireless facility from the roadway or other position that renders the wireless facility hazardous. Under these emergency circumstances, the City shall not be liable for any damage caused by removing the wireless facility and may charge the owner or operator of the wireless facility the City's reasonable expenses incurred in removing the wireless facility.

B. A permit is not required for:

(1) Routine maintenance on previously permitted small wireless facilities;

(2) The replacement of small wireless facilities with small wireless facilities that are the same or smaller in size, weight, and height; or

(3) The installation, placement, maintenance, operation, or replacement of micro wireless facilities that are strung on cables between utility poles, in compliance with applicable codes.

C. For work described in subdivisions B(1) and B(2) of this section that involves different equipment than that being replaced, the wireless services provider shall submit a description of such new equipment so that the City may maintain an accurate inventory of the small wireless facilities at that location.

D. No approval for the installation, placement, maintenance, or operation of a small wireless facility under this chapter shall be construed to confer authorization for the provision of cable television service, or installation, placement, maintenance, or operation of a wireline backhaul facility or communications facility, other than a small wireless facility, in the right-of-way or outside the right-of-way.
(Ord. No. 70917, § 3, 2-14-2019.)

Chapter 25.78

IMPACTED TENANTS' FUND

Sections:

25.78.010	**Definitions.**
25.78.020	**Establishment of the impacted tenants' fund.**
25.78.030	**Rules for approval of applications for assistance.**

25.78.010 Definitions.

"Act of God" means an event or occurrence that is the result of natural causes and could not have been prevented or controlled by the exercise of reasonable care, foresight, or due diligence. Such events include, but are not limited to, floods, hurricanes, tornadoes, earthquakes, wildfires, and other extreme natural phenomena.

"Code Official" shall have the same meaning as defined in Section 25.56.020.

"Condemnation for occupancy" or "condemned" is an order issued by the Code Official prohibiting persons from occupying and being present on the premises of a specified dwelling due to building code violations until such violations have been addressed and the order is rescinded.

"Eligible tenant" is a tenant of a rental dwelling unit who is forced to relocate due to condemnation for occupancy of such dwelling unit either due to the landlord's failure to maintain the rental unit in conformance with code requirements or due to a residential property destroyed or damaged by an Act of God of such magnitude as to activate the City Emergency Management Agency and results in the structure being unoccupied and uninhabitable.

"Impacted Tenants' Fund" is a fund established and managed by the City to provide a program of financial assistance to eligible tenants.

"Tenant" shall mean a resident of the City who legally occupies a rental dwelling unit with the property owner's consent and is obligated to pay rent.
(Ord. No. 72002, § 1, 6-3-2025; Ord. No. 71840, § 1, 5-1-2024.)

25.78.020 Establishment of the impacted tenants' fund.

The Comptroller of the City of St. Louis is hereby authorized and directed to establish a special account to be known as the Impacted Tenants' Fund in which

certain funds as described in this chapter shall be deposited. The Impacted Tenants' Fund shall be kept separate and apart from all other funds, and all interest generated on deposited funds shall accrue to the Impacted Tenants' Fund. All funds in the Impacted Tenants' Fund are appropriated to the Department of Human Services. The Director of the Department of Human Services is hereby authorized to make, negotiate, and execute all contracts or other documents on behalf of the City to expend such funds for reasonable administrative costs and to distribute such funds to eligible tenants. All contract agreements shall be subject to applicable City ordinances, policies, and procedures governing City contracts. The Comptroller is authorized and directed to issue warrants upon the City Treasury for payment of all expenditures authorized in this chapter provided that such warrants do not exceed the total amount of funds appropriated by this chapter.
(Ord. No. 71840, § 2, 5-1-2024.)

25.78.030 Rules for approval of applications for assistance.

Eligible tenants may receive financial assistance through the Impacted Tenants' Fund on a first-come-first-serve basis, subject to funding availability. The Director of the Department of Human Services is authorized to implement rules for approval of applications for assistance upon approval of such rules by the Housing, Urban Development and Zoning Committee. Each eligible tenant whose application is approved will receive financial assistance equal to one (1) month's rent based on the fair market rent for apartments of the same size or type as the one the eligible tenant is being forced to relocate from, as determined by the U.S. Department of Housing and Urban Development's Fair Market Rent statistics for the St. Louis Metro Area, as determined by HUD on an annual basis. The 2022 and 2023 Fair Market Rent statistics are shown on Exhibit A to Ord. No. 71840 for information.
(Ord. No. 71840, § 2, 5-1-2024.)

Chapter 25.80

SAFE TEMPERATURE IN RENTALS

Sections:

25.80.010 Definitions.
25.80.020 Rental dwelling cooling requirements.
25.80.030 Enforcement.
25.80.040 Reporting and prohibition of retaliatory acts.
25.80.050 Penalties.

25.80.010 Definitions.

Cooling system means a mechanism or set of devices designed to reduce or maintain the temperature of an environment. Examples of cooling systems include, but are not limited to, air conditioning units installed in windows, portable electronic air conditioners, and HVAC systems.

CREA means the St. Louis Civil Rights Enforcement Agency.

Owner, as defined in Section 25.56.020, means any person, agent, operator, firm, corporation, or any other legal entity having a legal or equitable interest in a parcel of real property; recorded in the official records of the City of St. Louis as holding title to a parcel of real property; or otherwise having control of real property, including as a landlord, collector of rent, or a guardian of an estate for any such person, executor, personal representative, administrator of the estate of such person, or bankruptcy trustee.

Rental dwelling unit, as defined in Section 25.56.020, means a dwelling unit that is being held out or being offered for rent or is being let for rent and/or occupied by any person who is not the owner of the premises.

Temperature sensor means a device that detects and measures hotness and coolness and converts it into an electrical signal.
(Ord. No. 71839, § 1, 4-26-2024.)

25.80.020 Rental dwelling cooling requirements.

A. Rental dwelling units shall be designed and maintained in such a manner that from May 1 through September 30, annually, the unit is capable of sustaining an indoor temperature between sixty-eight (68) and eighty-five (85) degrees Fahrenheit in at least one (1) habitable room, not to include the bathroom.

B. If a cooling system is provided by the owner, such system shall be maintained in such a manner that it is capable of maintaining an indoor temperature of eighty-five (85) degrees Fahrenheit or below in each room of the rental dwelling unit and is in compliance with all applicable City building, construction, and maintenance code requirements. Owners shall ensure that the cooling system is maintained in good working order through regular inspection as described under

Title 25 and maintenance in a reasonable time after a tenant reports a problem. Owners are required to inform tenants of the availability and proper use of the cooling system upon occupancy, if provided. Clear instructions on reporting any cooling system-related issues must be provided to tenants.

C. Temperature measurements shall be taken at a distance of three (3) feet above the floor in the center of the room.
(Ord. No. 71839, § 2, 4-26-2024.)

25.80.030 Enforcement.

The Building Division is hereby empowered to enforce the provisions of this section. When the Building Division has determined that a violation has occurred, the Division will impose penalties pursuant to Chapter 25.33. Additionally, the Building Division is directed to share that information with CREA, including details about the violation, the owner of the unit, the address of the unit, the corrective action taken to rectify the violation, and the fines paid as a penalty for the violation. Nothing in this chapter or the administration or application thereof shall be construed to create a private right of action.
(Ord. No. 71839, § 3, 4-26-2024.)

25.80.040 Reporting and prohibition of retaliatory acts.

A tenant of a rental dwelling unit can report noncompliance with the rental dwelling cooling requirements to the Citizens Service Bureau. Owners shall not retaliate when tenants report or complain of code violations as defined herein applicable to the premises to a competent governmental agency, elected representative, or public official charged with responsibility for enforcement or exercise any right or remedy provided by law. Retaliatory acts may include but are not limited to deferring or ceasing maintenance services and contacting or threatening to contact a law enforcement department or agency.
(Ord. No. 71839, § 4, 4-26-2024.)

25.80.050 Penalties.

Any person, firm, partnership, or corporation who violates any provision or provisions of this chapter shall be issued a fine up to five hundred dollars ($500.00), unless a higher maximum fine is subsequently dictated by Charter amendment, in which case the maximum fine shall be increased to such higher maximum authorized by the amendment. Each day's violation shall constitute a separate offense. Penalties of this chapter shall not become effective until July 1, 2025.
(Ord. No. 71839, § 5, 4-26-2024.)

Chapter 25.82

MOLD IN RENTAL DWELLING UNITS

Sections:

25.82.010 Definitions.
25.82.020 Owner's responsibility to prevent and remediate mold.
25.82.030 Tenant's responsibility to prevent and report mold.
25.82.040 Department of Health to create mold information.
25.82.050 Certificate of inspection—Mold.
25.82.060 Notice to owner of mold presence and remediation.
25.82.070 Owner's duty to notify occupants of mold presence and remediation.
25.82.080 Mold remediation.
25.82.090 Reporting and prohibition of retaliatory acts.
25.82.100 Enforcement.
25.82.110 Implementation.
25.82.120 Penalties.

25.82.010 Definitions.

Code Official as used in this chapter means the Building Commissioner or a duly authorized representative.

Common area means a portion of a multiple-family dwelling that is not within a rental dwelling unit and that is regularly used by occupants for access to and egress from any rental dwelling unit within such multiple-family dwelling, as well as commonly used areas such as a laundry room.

Mold means a fungal growth on an indoor surface, indoor building structure, or ventilation system, often caused by flooding, leaky roofs, poor building maintenance, or indoor plumbing problems. The term "mold" shall include any visible mold or any mold that a Code Official reasonably suspects to exist based on indicators such as odor, mold testing, underlying conditions conducive to mold growth, or other relevant factors.

Owner as used in this chapter means any individual or entity that owns, master leases, manages, or other-

wise directly or indirectly controls one (1) or more rental dwelling units located in the City of St. Louis, and any agent of such an individual or entity that makes tenancy decisions.

Remediation or *remediate* means measures to eradicate mold through cleaning and eliminating root causes of mold, including but not limited to the guidelines created by the Health Department pursuant to Section 25.82.040.

Rental dwelling unit as used in this chapter means a dwelling unit as defined in Section 25.56.020 that is being held out or being offered for rent or is being let for rent and/or occupied by any person who is not the owner of the premises.
(Ord. No. 71946, § 1, 12-30-2024.)

25.82.020 Owner's responsibility to prevent and remediate mold.

The existence of mold in any rental dwelling unit is hereby declared to constitute a condition dangerous to health. Except for the responsibilities of tenants set forth in Section 25.82.030, an owner of a rental dwelling unit shall keep the premises free from mold, shall prevent the reasonably foreseeable occurrence mold, and shall expeditiously remediate mold.
(Ord. No. 71946, § 2, 12-30-2024.)

25.82.030 Tenant's responsibility to prevent and report mold.

Tenants should routinely clean those areas of the rental dwelling unit that are always susceptible to mold growth, including bathrooms, especially shower stalls, bathroom tiles, and shower curtains, except owners are responsible for plumbing areas; window moldings; the seal on the refrigerator door and inside the refrigerator; surfaces in and around sinks, except owners are responsible for sink plumbing areas; and surfaces on and around window air conditioning units on the inside facing side of the unit. In order to prevent mold, tenants should use existing exhaust fans or windows in the bathroom to vent moisture; and tenants should keep dehumidifiers plugged in, running, and water emptied, if provided by the owner, and should alert the owner if there are problems with the operations of any dehumidifier. Tenants should notify the owner of any mold they see or smell as soon as possible. Failure to comply with this section shall not constitute a violation of this chapter and no citation or fine shall be issued to the tenant.
(Ord. No. 71946, § 3, 12-30-2024.)

25.82.040 Department of Health to create mold information.

Within sixty (60) days after the passage of the ordinance from which this chapter derives, the St. Louis City Department of Health shall create and make publicly available materials describing what mold is, how to identify and discover mold, the health hazards of mold, and how to remediate mold.
(Ord. No. 71946, § 4, 12-30-2024.)

25.82.050 Certificate of inspection—Mold.

The Building Division shall not issue a certificate of inspection to an owner if mold is found in a rental dwelling unit and/or common area during inspection until after the mold is remediated. If the Code Official determines through inspection that mold is present, the owner shall be responsible for remediation.
(Ord. No. 71946, § 5, 12-30-2024.)

25.82.060 Notice to owner of mold presence and remediation.

When evidence is found indicating the presence of mold, a Code Official shall give the owner written notice of the presence of mold.

a. This notice shall specify that the mold must be remediated within thirty (30) calendar days of the date of notice. It shall inform the owner of the notification obligations required by Section 25.82.070. It shall further state that if the mold is not remediated within thirty (30) calendar days of the date of the notice that the Code Official may revoke the certificate of inspection for such unit, condemn it for occupancy, and order the rental dwelling unit vacated.

i. This notice shall further include the materials created by the Department of Health as outlined in Section 25.82.040. A Code Official may also include any additional guidance around mold remediation that they deem relevant.

b. For good cause shown by the owner, the Code Official shall have authority to grant extensions for completion of work necessary to remediate the mold observed during the inspection where it is not feasible or possible to complete such work within thirty (30) calendar days of the date on which the notice was issued.

c. Notwithstanding the foregoing, if the Code Official determines that a rental dwelling unit or the building in which such unit is located warrants condemnation pursuant to the provisions of this chapter or any

other ordinances, the Code Official shall have authority to condemn such unit or building, without regard to the time limits specified above.
(Ord. No. 71946, § 6, 12-30-2024.)

25.82.070 Owner's duty to notify occupants of mold presence and remediation.

Within five (5) business days of receipt of written notification from a Code Official that mold was found in an occupied rental dwelling unit or common area, the owner shall give written notice of the presence of mold to all affected tenants living in that rental dwelling unit and/or with access to that common area. This notice shall further include the materials created by the Department of Health as outlined in Section 25.82.040. The owner shall provide such notice via in-person delivery, U.S. Mail, or electronic mail. The owner's failure to provide such notice shall be a violation of this chapter.
(Ord. No. 71946, § 7, 12-30-2024.)

25.82.080 Mold remediation.

The owner shall be responsible for appropriate mold remediation. Upon the receipt of written notice from a Code Official, the owner of any building or rental dwelling unit specified therein shall take timely measures for the mold remediation of such building. Unless said work has been completed in the time specified in the written notice, inclusive of any written extension thereof that may be granted by the Building Division, the owner shall be in violation of this chapter.
(Ord. No. 71946, § 8, 12-30-2024.)

25.82.090 Reporting and prohibition of retaliatory acts.

a. If a tenant of a rental dwelling unit reasonably believes that mold is present in their unit, they shall, as soon as possible, report the presence of mold and suspected underlying cause to the Citizens Service Bureau for an inspection.

i. A tenant's failure to report the presence of mold to the Citizens Service Bureau does not constitute a violation of this chapter and does not relieve an owner of the responsibility to comply with this chapter.

b. Owners shall not retaliate against tenants who report or complain of code violations as defined herein applicable to the premises to a governmental agency, elected representative, or public official charged with responsibility for enforcement, or exercise any right or remedy provided by law. Retaliatory acts may include but are not limited to deferring or ceasing maintenance services and contacting or threatening to contact a law enforcement department or agency.
(Ord. No. 71946, § 9, 12-30-2024.)

25.82.100 Enforcement.

The Building Division is hereby empowered to enforce the provisions of this chapter. The imposition of penalties shall be as prescribed by Section 25.82.120. Nothing in this chapter or the administration or application thereof shall be construed to create a private right of action.
(Ord. No. 71946, § 10, 12-30-2024.)

25.82.110 Implementation.

a. The Code Official shall provide appropriate training to division personnel for mold inspection. Such training shall include, but shall not be limited to:

i. Procedures for investigating and identifying the root cause of the mold, such as flooding, leaky roofs, poor building maintenance, or indoor plumbing problems; and

ii. Familiarity with the materials created by the Department of Health as outlined in Section 25.82.040.
(Ord. No. 71946, § 11, 12-30-2024.)

25.82.120 Penalties.

Any person, firm, partnership, or corporation who violates any provision or provisions of this ordinance shall be issued a fine up to five hundred dollars ($500.00). Each day's violation shall constitute a separate offense.
(Ord. No. 71946, § 12, 12-30-2024.)

Chapter 25.84

OCCUPANCY LAW

Sections:

25.84.010 Adoption of Section 137.082, RSMo.

25.84.010 Adoption of Section 137.082, RSMo.

A. Pursuant to Section 137.082.8, RSMo., the City of St. Louis adopts the "Occupancy Law" as found in its entirety in section 137.082, RSMo.

B. The Assessor for the City of St. Louis shall develop and administer processes to implement and effect the provisions of Section 137.082, RSMo.
(Ord. No. 72001, § 1, 5-30-2025.)

Title 26

ZONING

Prior history: Ords. 45309, 47494, 47495, 47795, 48004, 48573, 49536, 50063, 50091, 50547, 50981, 52025, 52026, 52027, 53596, 54635, 54733, 54759, 54846, 55562, 55620, 56443, 56914, 57455, 57590, 57454, 58062, 58070, 58132; 1948 C. Part III; 1960 C. Chs. 900—932

RSMo:

RSMo Ch. 89 (2016) Zoning and planning

City Counselor Ops.: 8020, 8153, 8189, 8206, 8242-A, 8406, 8413, 8483, 8527, 8610, 8659, 8727, 9298, 9326, 9905, 10200, 10317

Cases:

Zoning ordinance or city imposing restrictions on the use of private property having no relation to the health, comfort, safety or welfare of the inhabitants, held void as the taking of private property without compensation or due process of law. *City of St. Louis v. Evraiff,* 301 Mo. 231, 256 S.W. 489 (1932).

Zoning ordinance No. 35003 dividing St. Louis into use and height and area districts held valid. *State v. Christopher,* 298 S.W. 720 (1927).

Zoning ordinance of the City of St. Louis dividing the City into five districts according to uses of property was held invalid; such ordinance did not constitute a valid exercise of the police power. *State vs. McKelvey,* 256 S.W. 495 (1923).

McQuillin:

Ch. 25 Zoning

Chapters:

26.04 Citation and Purpose

26.08 Zoning Definitions

26.12 Zoning Districts and Boundaries

26.16 General Zoning Regulations

26.20 "A" Single-Family Dwelling District

26.24 "B" Two-Family Dwelling District

26.28 "C" Multiple-Family Dwelling District

26.32 "D" Multiple-Family Dwelling District

26.36 "E" Multiple-Family Dwelling District

26.40 "F" Neighborhood Commercial District

26.44 "G" Local Commercial and Office District

26.48 "H" Area Commercial District

26.52 "I" Central Business District

26.56 "J" Industrial District

26.60 "K" Unrestricted District

26.64 "L" Jefferson Memorial District

26.66 Bed and Breakfast Districts

26.68 Comprehensive Sign Control Regulations

26.70 Marijuana Uses

26.72 Regulated Uses

26.73 Special Use Districts

26.74 Off-Street Parking and Loading in Dwelling Districts

26.75 Special Residential Uses

26.76 Short-Term Rental

26.80 Use, Height and Area Exceptions

26.82 Form-Based Districts

26.84 Board of Adjustment

26.88 Zoning Administrator

26.92 Changes and Amendments

26.96 Plats, Certificates of Occupancy and Survey Fees

26.98 Fee Schedule

26.100 Violations

Chapter 26.04

CITATION AND PURPOSE

Chapters:

26.04.010 Title.

26.04.020 Acceptance of Act.

26.04.030 Zoning Commission.

26.04.040 Interpretation and purpose.

26.04.010 Title.

Chapters 26.04 through 26.100 shall be known and cited as "the Zoning Code" and shall consist of the following chapters:

Chapter	Description
26.04	Citation and Purposes
26.08	Zoning Definitions
26.12	Zoning Districts and Boundaries
26.16	General Zoning Regulations
26.20	"A" Single-Family Dwelling District
26.24	"B" Two-Family Dwelling District
26.28	"C Multiple-Family Dwelling District"
26.32	"D" Multiple-Family Dwelling District
26.36	"E" Multiple-Family Dwelling District
26.40	"F Neighborhood Commercial District"
26.44	"G" Local Commercial and Office District
26.48	"H" Area Commercial District
26.52	"I" Central Business District
26.56	"J" Industrial District
26.60	"K" Unrestricted District
26.64	"L" Jefferson Memorial District
26.66	Bed and Breakfast Districts
26.68	Comprehensive Sign Control Regulations
26.70	Marijuana Uses
26.72	Regulated Uses
26.73	Special Use Districts
26.74	Off-Street Parking and Loading in Dwelling Districts
26.75	Special Residential Uses
26.76	Short-Term Rentals
26.80	Use, Height and Area Exceptions
26.82	Form-Based Districts
26.84	Board of Adjustment
26.88	Zoning Administrator
26.92	Changes and Amendments
26.96	Plats, Certificates of Occupancy and Survey Fees
26.98	Fee Schedule
26.100	Violations

(1994 C., § 26.04.010; Ord. No. 71940, § 1, 12-10-2024; Ord. No. 71928, § 1, 11-19-2024; Ord. No. 71897, § 1, 10-11-2024; Ord. No. 59979, § 2(part), 1986.)

Editor's Note:

Ord. No. 70982 amended the Zoning Code by adding Chapter 26.70 pertaining to medical marijuana, but the ordinance did not amend the foregoing table.

26.04.020 Acceptance of Act.

The provisions of Section 6 of an Act of the General Assembly of Missouri, approved April 30, 1925, relating to zoning, as amended, are accepted. (1994 C., § 26.04.020; Ord. No. 59979, § 2(part), 1986.)

Editor's Note:

The session law reference in the above section is to RSMo 89.090.

26.04.030 Zoning Commission.

The Community Development Commission shall be the Zoning Commission as provided for in Section 6 of said Act. (1994 C., § 26.04.030; Ord. No. 59979, § 2(part), 1986.)

Editor's Note:

The session law reference in the above section is to RSMo 89.090.

26.04.040 Interpretation and purpose.

In interpreting and applying the provisions of the Zoning Code, they shall be held to the minimum requirements for the promotion of the public safety, health, convenience, comfort, prosperity and general welfare. It is not the intention of the Zoning Code to interfere with or abrogate or annul any easements, covenants or other agreement between parties; provided, however, that where the Zoning Code imposes a greater restriction upon the use of a building or premises or upon the height of a building, or requires larger open spaces that are imposed or required by other ordinances, rules, regulations, or permits or by easements, covenants or agreements, the provisions of the Zoning Code shall govern. (1994 C., § 26.04.040; Ord. No. 59979, § 2(part), 1986.)

Chapter 26.08

ZONING DEFINITIONS

Prior ordinance history: Ord. 59979

Sections:

26.08.010 Application of definitions.
26.08.020 Accessory building.
26.08.022 Accessory dwelling unit, attached.
26.08.023 Accessory dwelling unit, detached.
26.08.025 Accessory use.
26.08.030 Alley.
26.08.035 Animal clinic.
26.08.040 Apartment house.
26.08.050 Basement.
26.08.053 Bed and breakfast guesthouse.
26.08.056 Bed and breakfast homestay.
26.08.058 Bed and breakfast inn.
26.08.059 Bicycle parking space.
26.08.060 Bicycle rack.
26.08.065 Reserved.
26.08.070 Building.
26.08.080 Building, height of.
26.08.090 Buildable width.
26.08.100 Cellar.

26.08.101 Check-cashing establishment.

26.08.103 Clinic.

26.08.104 Conditional use.

26.08.104.1 Convenience store.

26.08.105 Conversion town house.

26.08.107 Creative design rack.

26.08.110 Dwelling.

26.08.115 Dwelling unit.

26.08.120 Dwelling, single-family.

26.08.130 Dwelling, two-family

26.08.140 Dwelling, semi-detached two-family.

26.08.150 Dwelling, multiple-family.

26.08.160 Family.

26.08.162 Financial institution.

26.08.165 Floor area.

26.08.166 Floor area ratio.

26.08.170 Frontage.

26.08.180 Garage, private.

26.08.190 Garage, public.

26.08.200 Garage, storage.

26.08.210 Garage, warehouse.

26.08.230 Guestroom.

26.08.240 Home occupation.

26.08.245 Home for senior citizens.

26.08.250 Hospital.

26.08.260 Hotel.

26.08.270 Lot.

26.08.280 Lot, corner.

26.08.290 Lot, depth of.

26.08.300 Lot, interior.

26.08.310 Lot, lines.

26.08.320 Lot, through.

26.08.321 Marijuana, Marijuana-Infused Products, Medical Marijuana Cultivation Facility, Medical Marijuana Dispensary Facility, Medical Marijuana Facility, Medical Marijuana-Infused Products Manufacturing Facility, Medical Marijuana Testing Facility, Medical Marijuana Use, Comprehensive Facility, Comprehensive Marijuana Cultivation Facility, Comprehensive Marijuana Dispensary Facility, Comprehensive Marijuana-Infused Products Manufacturing Facility, Consumer, Marijuana Accessories, Marijuana Facility, Marijuana Microbusiness Facility, Microbusiness Wholesale Facility, Marijuana Testing Facility, and Preroll.

26.08.322 Micro wireless facility.

26.08.325 Motor fuel pumping station.

26.08.330 Nonconforming use.

26.08.331 Nonconforming structure.

26.08.337 Package liquor store.

26.08.340 Parking lot, commercial.

26.08.350 Parking space.

26.08.360 Place.

26.08.370 Premises.

26.08.375 Restaurant.

26.08.377 Restaurant, carry-out.

26.08.380 Reserved.

26.08.384 Short-term loan establishment.

26.08.384.1 Short-term rental; short-term rental agent; short-term rental, non-occupied; short-term rental, occupied; short-term rental owner; short-term rental permit; short-term rental unit; and dwelling unit.

26.08.385 Sign.

26.08.387 Sleeping room.

26.08.389 Small wireless facility.

26.08.389.1 Special residential uses.

26.08.390 Story.

26.08.400 Story, half.

26.08.410 Street.

26.08.420 Structural alteration.

26.08.430 Structure.

26.08.432 Telephone, outdoor pay.

26.08.433 Tourist home.

26.08.435 Town house.

26.08.436 Utility stations and utility towers.

26.08.437 Wireless facility.

26.08.438 Wireless support structure.

26.08.440 Yard.

26.08.450 Yard, front.

26.08.460 Yard, rear.

26.08.470 Yard, side.

26.08.480 Zoning Administrator.

26.08.010 Application of definitions.

For the purpose of this Zoning Code certain terms and words are hereby defined. Words used in the present tense shall include the future; the singular shall include the plural and the singular; the word "building" shall include the word "structure"; the word "lot" shall include the word "plot"; and the word "shall" is mandatory and not directory. Any term not herein defined shall be construed as defined in the "Building Code of the City of St. Louis." (1994 C., § 26.08.010; Ord. No. 62588, § 2(part), 1992.)

26.08.020 Accessory building.

A subordinate building, the use of which is incidental to that of the main building. (1994 C., § 26.08.020; Ord. No. 62588, § 2(part), 1992.)

26.08.022 Accessory dwelling unit, attached.

A subordinate, independent dwelling unit on the same parcel as: a single-family dwelling, two-family dwelling, or semi-detached two-family dwelling, acting as an accessory use, connected to but not within the principal structure.
(Ord. No. 72036, § 1, 7-11-2025.)

26.08.023 Accessory dwelling unit, detached.

A subordinate, independent dwelling unit on the same parcel as: a single-family dwelling, two-family dwelling, or semi-detached two-family dwelling, acting as an accessory use, separate from the principal structure.
(Ord. No. 72036, § 1, 7-11-2025.)

26.08.025 Accessory use.

The term applied to a use that is subordinate in physical character to the principal use, that is clearly incidental to the principal use and that is located on the same lot with the principal use. (1994 C., § 26.08.025; Ord. No. 62588, § 2(part), 1992.)

26.08.030 Alley.

A public thoroughfare which affords only a secondary means of access to abutting property. (1994 C., § 26.08.030; Ord. No. 62588, § 2(part), 1992.)

26.08.035 Animal clinic.

An establishment that is used for the practice of veterinary medicine. (1994 C., § 26.08.035; Ord. No. 62588, § 2(part), 1992.)

26.08.040 Apartment house.

A dwelling, multiple-family. (1994 C., § 26.08.040; Ord. No. 62588, § 2(part), 1992.)

26.08.050 Basement.

A story having part but not more than one half its height below grade. A basement shall not be included in computing the number of stories of buildings referred to in any part of the Zoning Code unless it is subdivided, rented, sold or leased for dwelling purposes. (1994 C., § 26.08.050; Ord. No. 62588, § 2(part), 1992.)

26.08.053 Bed and breakfast guesthouse.

A dwelling having not more than seven guestrooms where travelers for compensation are lodged for sleeping purposes with at least a morning meal provided. It is owner-occupied, and no more than three (3) guestrooms shall be served by one bathroom and a separate bathroom must be maintained for the owner occupants. (1994 C., § 26.08.053; Ord. No. 62588, § 2(part), 1992.)

26.08.056 Bed and breakfast homestay.

A dwelling having not more than two guestrooms where travelers for compensation are lodged for sleeping purposes with at least a morning meal provided. It is owner-occupied, having no employees, and lodging travelers. (1994 C., § 26.08.056; Ord. No. 62588, § 2(part), 1992.)

26.08.058 Bed and breakfast inn.

A building having not more than nineteen guestrooms where travelers for compensation are lodged for sleeping purposes with at least a morning meal provided. No more than three guestrooms shall be served by one bathroom and if owner or manager occupied, a separate bathroom must be maintained for said owner or manager. (1994 C., § 26.08.058; Ord. No. 62588, § 2(part), 1992.)

26.08.059 Bicycle parking space.

A four (4) feet by six (6) feet space provided for locking two (2) bicycles to a City approved bicycle rack. (1994 C., § 26.08.059; Ord. No. 69148, § 1, 4-4-2012)

26.08.060 Bicycle rack.

A stationary device anchored to the ground providing a stable frame to which two (2) bicycles may be conveniently secured. Common examples of preferred

bicycle racks include "inverted-U," "post and loop," or "A" racks, and a creative design rack as defined and regulated herein.
(1994 C., § 26.08.060; Ord. No. 69148, § 1, 4-4-2012)

26.08.065 Reserved.

Editor's Note:

Ord. No. 71928, § 2, approved November 19, 2024, amended the Code by repealing former § 26.08.065, which pertained to the definition of "boarding house" and derived from the 1994 Code, § 26.08.065; and Ord. No. 62588, § 2, of 1992.

26.08.070 Building.

Any structure for the shelter, support or enclosure of persons, animals, chattels or property of any kind. When separated by division walls without openings, each portion of such building so separated shall be deemed a separate building. (1994 C., § 26.08.070; Ord. No. 62588, § 2(part), 1992.)

26.08.080 Building, height of.

The vertical distance measured from the curb grade or its equivalent established grade at a point midway between the two side lot lines to the highest point of the roof in the case of a flat roof, to the deck line of a mansard roof, or to the mean height level between the eaves and ridge of a gable, hip or gambrel roof excluding church spires, except that, where buildings are set back from the street line, the height on the building may be measured from the average elevation of the finished lot grade at the base of the front of the building. (1994 C., § 26.08.080; Ord. No. 62588, § 2(part), 1992.)

26.08.090 Buildable width.

The width of that part of the lot not included within the open spaces herein required in the Zoning Code. (1994 C., § 26.08.090; Ord. No. 62588, § 2(part), 1992.)

26.08.100 Cellar.

A story having more than one-half its height below grade. A cellar shall not be included in computing the number of stories of buildings referred to in any part of the Zoning Code unless it is subdivided, rented, sold or leased for dwelling purposes. (1994 C., § 26.08.100; Ord. No. 62588, § 2(part), 1992.)

26.08.101 Check-cashing establishment.

A business engaged in cashing checks for the general public as an element of its operation, which exceeds 50% of its gross revenues, and which is not licensed by the appropriate state or federal agency as a bank, savings and loan association, or credit union.

Check-cashing establishments are not permitted in zoning districts "A," "B," "C," "D," "E," "F," and "L" and may be permitted as conditional uses in zoning districts "G," "H," "I," "J," and "K." No permit shall be issued for any check-cashing establishment that is located within 5,280 feet of any other check-cashing establishment and/or short-term loan establishment, or within five hundred (500) feet of any premises used as a dwelling including, but not limited to, a single-family dwelling, a two-family dwelling, a multifamily dwelling, a town home, or a semi-attached two-family, or within five hundred (500) feet of any structure used as elementary or secondary schools. (1994 C., § 26.08.101; Ord. No. 68185, § 2, 12-1-2008; Ord. No. 64836, §§ 1, 2, 1999.)

26.08.103 Clinic.

An establishment that is used for the provision of medical treatment for sick or injured people, treatment of alcohol and drug abuse, and treatment of the mentally or physically handicapped on an outpatient basis. (1994 C., § 26.08.103; Ord. No. 62588, § 2(part), 1992.)

26.08.104 Conditional use.

A use not authorized as a matter of right by the regulations of the district in which the use is proposed to be located but subject to being authorized for such district by action of the Zoning Administrator. The appropriateness of a particular use is to be determined based on the requirements and standards specified in Chapter 26.80. (1994 C., § 26.08.104; Ord. No. 62588, § 2(part), 1992.)

26.08.104.1 Convenience store.

Any grocery or retail establishment, not exceeding three thousand five hundred (3,500) square feet, offering for sale a limited line of groceries and household items and prepared foods usually for off-site consumption. (1994 C., § 26.08.104.1; Ord. No. 69395, § 1, 2-14-2013.)

26.08.105 Conversion town house.

A town house as defined in Section 26.08.435; except that such town house is the product of a reconstruction or rehabilitation of a previously constructed dwelling, that the total number of town houses resulting from the reconstruction or rehabilitation is equal to or less than the total number of dwelling units previously existing in the dwelling, that the total floor area of the previously constructed dwelling shall not be increased resulting from the reconstruction or rehabilitation of a previously constructed dwelling, and that the aggregate area of all the town house lots resulting from the reconstruction or rehabilitation is no less than the area of the lot of the previously existing dwelling. Reference to a town house in this Zoning Code includes reference to a conversion town house unless a conversion town house is specifically distinguished. (1994 C., § 26.08.105; Ord. No. 64868, § 2, 2000; Ord. No. 62588, § 2(part), 1992.)

26.08.107 Creative design rack.

Any rack other than the standard "inverted-U," "post and loop," or "A" rack. (1994 C., § 26.08.107; Ord. No. 69148, § 1, 4-4-2012.)

26.08.110 Dwelling.

Any building, or portion thereof, which is designed for or used for residential purposes. (1994 C., § 26.08.110; Ord. No. 62588, § 2(part), 1992.)

26.08.115 Dwelling unit.

A room or group of rooms with cooking and sanitary facilities, occupied or arranged for occupancy by a single family. (1994 C., § 26.08.115; Ord. No. 62588, § 2(part), 1992.)

26.08.120 Dwelling, single-family.

A building containing one dwelling unit. (1994 C., § 26.08.120; Ord. No. 62588, § 2(part), 1992.)

26.08.130 Dwelling, two-family

A building containing two dwelling units. (1994 C., § 26.08.130; Ord. No. 62588, § 2(part), 1992.)

26.08.140 Dwelling, semi-detached two-family.

Two 2-family dwellings separated by a division wall. (1994 C., § 26.08.140; Ord. No. 62588, § 2(part), 1992.)

26.08.150 Dwelling, multiple-family.

A building containing three or more dwelling units, other than a townhouse a semi-detached two-family dwelling.
(1994 C., § 26.08.150; Ord. No. 71928, § 2, 11-19-2024; Ord. No. 62588, § 2(part), 1992.)

26.08.160 Family.

A person, or group of persons immediately related by blood, marriage or adoption, living as a single housekeeping unit; also a group of not more than three (3) persons not necessarily related by blood, marriage or adoption, living as a single housekeeping unit. (1994 C., § 26.08.160; Ord. No. 62588, § 2(part), 1992.)

26.08.162 Financial institution.

An establishment that is engaged in the business of a bank, savings and loan association, or credit union that is regulated by state or federal authority. Such establishment includes, without limitation, an office building or portion thereof devoted to such use, a drive-up facility, and a facility containing one or more automated teller machines. (1994 C., § 26.08.162; Ord. No. 64837, § 3, 1999; Ord. No. 62588, § 2(part), 1992.)

26.08.165 Floor area.

The total interior area of all floors of a building or structure measured to the inside face of the exterior walls but excluding stairwells, lobbies, common corridors and other nonleasable circulation areas, elevator shafts and space occupied by mechanical equipment or space related to the operation and maintenance of the building as well as that floor surface covered by walls or partitions enclosing these common areas or elements of a building. (1994 C., § 26.08.165; Ord. No. 62588, § 2(part), 1992.)

26.08.166 Floor area ratio.

The total floor area of a building or structure on any lot divided by the total area of that lot. (1994 C., § 26.08.166; Ord. No. 62588, § 2(part), 1992.)

26.08.170 Frontage.

All the land abutting on one side of a street or place between two intersecting streets or places (crossing or terminating) measured along the line dividing the street or place from the individual lots, or if the street or place be a dead end, then all the property abutting on one side between an intersecting street or place and the dead-end of the street or place, or if neither of the above apply, then all the land abutting on one side of particular block as designated by house numbers. (1994 C., § 26.08.170; Ord. No. 62588, § 2(part), 1992.)

26.08.180 Garage, private.

A building or portion of a building designed or used for the housing of motor driven vehicles. (1994 C., § 26.08.180; Ord. No. 62588, § 2(part), 1992.)

26.08.190 Garage, public.

A building or portion of a building other than a private garage, a storage garage, or a warehouse garage, used for storage, equipping, repairing, hiring or selling of motor driven vehicles. (1994 C., § 26.08.190; Ord. No. 62588, § 2(part), 1992.)

26.08.200 Garage, storage.

A building or portion of a building, other than a private garage, used exclusively for storage of motor driven vehicles. (1994 C., § 26.08.200; Ord. No. 62588, § 2(part), 1992.)

26.08.210 Garage, warehouse.

A building or portion of a building used exclusively for the storage of motor driven vehicles awaiting sale. (1994 C., § 26.08.210; Ord. No. 62588, § 2(part), 1992.)

26.08.230 Guestroom.

A room for lodging by no more than four (4) persons in a bed and breakfast establishment. (1994 C., § 26.08.230; Ord. No. 62588, § 2(part), 1992.)

26.08.240 Home occupation.

An accessory use of a dwelling unit that constitutes either entirely or partly the livelihood of a person living in the dwelling unit. See Section 26.80.060—Home Occupations. (1994 C., § 26.08.240; Ord. No. 62588, § 2(part), 1992.)

26.08.245 Home for senior citizens.

A residential building containing eight or more bedrooms limited to the use and occupancy of any persons, married or single, 62 years of age or over; such building shall not be used for such purposes as a convalescent or nursing home. (1994 C., § 26.08.245; Ord. No. 62588, § 2(part), 1992.)

26.08.250 Hospital.

An institution providing medical treatment and overnight bed care for the sick or injured. (1994 C., § 26.08.250; Ord. No. 62588, § 2(part), 1992.)

26.08.260 Hotel.

A building, other than a bed and breakfast inn, used as the abiding place of more than 20 persons who are for compensation lodged with or without meals. (1994 C., § 26.08.260; Ord. No. 62588, § 2(part), 1992.)

26.08.270 Lot.

A parcel of land occupied or proposed for improvement with one main building together with the accessory structures and uses customarily incidental to it and including such open space as is required under the Zoning Code, which parcel of land is either referred to in Section 26.80.050 or has its principal frontage either on a public street or place on a private residence street of record. Land that was formerly part of another lot and that was required for compliance with area regulations for an existing building on such other lot shall not be considered in determining whether a building to be erected, enlarged, structurally altered or moved complies with applicable area regulations. (1994 C., § 26.08.270; Ord. No. 62588, § 2(part), 1992.)

26.08.280 Lot, corner.

A lot abutting on two streets at their intersection. (1994 C., § 26.08.280; Ord. No. 62588, § 2(part), 1992.)

26.08.290 Lot, depth of.

The minimum horizontal distance between the front and rear lot lines. (1994 C., § 26.08.290; Ord. No. 62588, § 2(part), 1992.)

26.08.300 Lot, interior.

A lot other than a corner lot. (1994 C., § 26.08.300; Ord. No. 62588, § 2(part), 1992.)

26.08.310 Lot, lines.

Lines bounding a lot, as defined herein. (1994 C., § 26.08.310; Ord. No. 62588, § 2(part), 1992.)

26.08.320 Lot, through.

An interior lot having a frontage on each of two streets parallel or approximately parallel to each other. (1994 C., § 26.08.320; Ord. No. 62588, § 2(part), 1992.)

26.08.321 Marijuana, Marijuana-Infused Products, Medical Marijuana Cultivation Facility, Medical Marijuana Dispensary Facility, Medical Marijuana Facility, Medical Marijuana-Infused Products Manufacturing Facility, Medical Marijuana Testing Facility, Medical Marijuana Use, Comprehensive Facility, Comprehensive Marijuana Cultivation Facility, Comprehensive Marijuana Dispensary Facility, Comprehensive Marijuana-Infused Products Manufacturing Facility, Consumer, Marijuana Accessories, Marijuana Facility, Marijuana Microbusiness Facility, Microbusiness Wholesale Facility, Marijuana Testing Facility, and Preroll.

See Chapter 26.70 for definitions.
(Ord. No. 71633, § 1, 2-16-2023.)

26.08.322 Micro wireless facility.

A small wireless facility that is not larger in dimension than twenty-four inches in length, fifteen inches in width, and twelve inches in height; and any exterior antenna no longer than eleven inches. (Ord. No. 70942, § 1, 5-2-2019.)

26.08.325 Motor fuel pumping station.

An establishment having one or more pumps wherein a principal activity is the sale of motor fuel that is directly dispensed to the consumer's vehicle. (1994 C., § 26.08.325; Ord. No. 62588, § 2(part), 1992.)

26.08.330 Nonconforming use.

Any building or land lawfully occupied by a use on May 25, 1950, or on the effective date of any amendment to Ordinance 45309, and which is in conflict with one or more of the regulations of the district in which it

is situated. (1994 C., § 26.08.330; Ord. No. 62588, § 2(part), 1992.)

26.08.331 Nonconforming structure.

A structure which existed lawfully prior to May 25, 1950, or on the effective date of any amendment to Ordinance 45309, and which is in conflict with one or more of the regulations of the district in which it is situated. (1994 C., § 26.08.331; Ord. No. 62588, § 2(part), 1992.)

26.08.337 Package liquor store.

An establishment at which primarily liquor products are sold at retail and not for consumption on the premises. (1994 C., § 26.08.337; Ord. No. 62588, § 2(part), 1992.)

26.08.340 Parking lot, commercial.

A lot on which space for parking is offered to the general public in return for a consideration or compensation. (1994 C., § 26.08.340; Ord. No. 62588, § 2(part), 1992.)

26.08.350 Parking space.

A surfaced area, exclusive of driveways, permanently reserved for the temporary storage of one automobile and connected directly with a street or alley or connected thereto by a driveway. The layout, arrangement and dimensions of drives and parking spaces shall be in accordance with Section 26.16.080. (1994 C., § 26.08.350; Ord. No. 62588, § 2(part), 1992.)

26.08.360 Place.

An open unoccupied space other than a street or alley permanently reserved and approved by the Board of Public Service as the principal means of access to abutting property. (1994 C., § 26.08.360; Ord. No. 62588, § 2(part), 1992.)

26.08.370 Premises.

A continuous area of land and any structures thereon all under a single ownership or operation under a single direction, which premises may include one or more adjacent lots, or fractions of lots. (1994 C., § 26.08.370; Ord. No. 62588, § 2(part), 1992.)

26.08.375 Restaurant.

An establishment where meals or refreshments are sold to the public. (1994 C., § 26.08.375; Ord. No. 62588, § 2(part), 1992.)

26.08.377 Restaurant, carry-out.

A restaurant where food, frozen dessert, or beverages are primarily sold in a packaged, ready-to-consume state, intended for ready consumption by the customer on or off the premises. (1994 C., § 26.08.377; Ord. No. 62588, § 2(part), 1992.)

26.08.380 Reserved.

Editor's Note:

Ord. No. 71928, § 2, approved November 19, 2024, amended the Code by repealing former § 26.08.380, which pertained to the definition of "rooming house" and derived from the 1994 Code, § 26.08.380; and Ord. No. 62588, § 2, of 1992.

26.08.384 Short-term loan establishment.

A business engaged in providing short-term loans to members of the general public as an element of its operation and which is not licensed by the appropriate state or federal agency as a bank, savings and loan association, or credit union. Short-term loan establishments shall include businesses offering title loans, payday loans, signature loans, small loans, pawnshops, and other similar businesses.

Short-term loan establishments are not permitted in zoning districts "A," "B," "C," "D," "E," "F," and "L" and may be permitted as conditional uses in zoning districts "G," "H," "I," "J," and "K."

No permit shall be issued for any short-term loan establishment that is located within 5,280 feet of any other short-term loan establishment and/or check-cashing establishment, or within five hundred (500) feet of any premises used as a dwelling including, but not limited to, a single-family dwelling, a two-family dwelling, a multifamily dwelling, a town home, or a semi-attached two-family, or within five hundred (500) feet of any structure used as elementary or secondary schools. (1994 C., § 26.08.384; Ord. No. 68185, § 3, 12-1-2008; Ord. No. 64837, §§ 1, 2, 1999.)

26.08.384.1 Short-term rental; short-term rental agent; short-term rental, non-occupied; short-term rental, occupied; short-term rental owner; short-term rental permit; short-term rental unit; and dwelling unit.

See Chapter 26.76 for definitions.

(Ord. No. 71940, § 2, 12-10-2024; Ord. No. 71730, § 1, 11-6-2023.)

Editor's Note:

Ord. No. 71730, § 1, approved November 6, 2023, amended the Code by renumbering former § 26.08.385 as a new

§ 26.08.386, and adding a new § 26.08.385. Subsequently, Ord. No. 71940, § 2, approved December 10, 2024, renumbered the new § 26.08.385 as § 26.08.384.1.

26.08.385 Sign.

Any structure or part thereof, or any device attached to, painted on, or represented on a building or other structure, upon which is displayed or included any letter, word, model, banner, flag, insignia, decoration, device, or representation used as, or in the nature of, an announcement, direction, advertisement, or attention directing device.
(1994 C., § 26.08.385; Ord. No. 71940, § 2, 12-10-2024; Ord. No. 71730, § 1, 11-6-2023; Ord. No. 62588, § 2, 1992.)

Note:

Former § 26.08.385. See editor's note, § 26.08.385. Renumbered as § 26.08.385 by Ord. No. 71940, § 2, approved December 10, 2024.

26.08.387 Sleeping room.

A room or group of rooms, without cooking facilities, that provides sleeping accommodations for one or more individuals.
(1994 C., § 26.08.387; Ord. No. 71928, § 2, 11-19-2024; Ord. No. 62588, § 2(part), 1992.)

26.08.389 Small wireless facility.

A wireless facility that meets both of the following qualifications: (a) each wireless provider's antenna could fit within an enclosure of no more than six cubic feet in volume; and (b) All other equipment associated with the wireless facility, whether ground or pole mounted, is cumulatively no more than twenty-eight cubic feet in volume, provided that no single piece of equipment on the utility pole shall exceed nine cubic feet in volume; and no single piece of ground mounted equipment shall exceed fifteen cubic feet in volume, exclusive of equipment required by an electric utility or municipal electric utility to power the small wireless facility. The following types of associated ancillary equipment shall not be included in the calculation of equipment volume: electric meter, concealment elements, telecommunications demarcation box, grounding equipment, power transfer switch, cut-off switch, and vertical cable runs and related conduit for the connection of power and other services. (Ord. No. 70942, § 1, 5-2-2019.)

26.08.389.1 Special residential uses.

Boarding house; dormitory; group home; halfway house; rooming house; shelter, congregate; shelter, single-room occupancy; substance use treatment center; support services; and transitional housing.
(Ord. No. 71928, § 2, 11-19-2024.)

26.08.390 Story.

That part of a structure contained between the level of one finished floor, or, if the top story, that part of a structure contained between the level of the highest finished floor and the ceiling above it. (1994 C., § 26.08.390; Ord. No. 62588, § 2(part), 1992.)

26.08.400 Story, half.

A space under a sloping roof which has the line of intersection of roof decking and wall face not more than 3 feet above the top floor level and in which space not more than two-thirds of the floor area is furnished for use. (1994 C., § 26.08.400; Ord. No. 62588, § 2(part), 1992.)

26.08.410 Street.

A public thoroughfare which affords principal means of access to abutting property. (1994 C., § 26.08.410; Ord. No. 62588, § 2(part), 1992.)

26.08.420 Structural alteration.

Any change in the supporting members of a building such as bearing walls, columns, lintels, beams or girders. (1994 C., § 26.08.420; Ord. No. 62588, § 2(part), 1992.)

26.08.430 Structure.

A combination of material assembled, constructed or erected at a fixed location, including a building, the use of which requires location on the ground or attachment to something located on the ground. (1994 C., § 26.08.430; Ord. No. 62588, § 2(part), 1992.)

26.08.432 Telephone, outdoor pay.

"Outdoor pay telephone" means a telephone for hire located on private property which is not located within a building used for additional purposes with controlled access by means of a door or doors that may be locked. (1994 C., § 26.08.432; Ord. No. 64167, § 2, 1997.)

26.08.433 Tourist home.

A bed and breakfast establishment. (1994 C., § 26.08.433; Ord. No. 62588, § 2(part), 1992.)

26.08.435 Town house.

A series of attached single-family dwellings separated by exterior quality walls or a common wall between units as required by the St. Louis Building Code, except that the maximum number of abutting dwelling units in any town house series shall not exceed eight, that each dwelling unit shall front wholly and directly upon a public street, or private place or upon a courtyard or way through which the owner of the town house dwelling unit has legally guaranteed ingress and egress to a public street or private place, and that each such dwelling unit shall have a dimension of not less than 14 feet along the width of the dwelling unit. Any contiguous grouping of five or more town house dwelling units to be developed as herein defined shall be subject to the provisions and requirements of Section 26.16.100. (1994 C., § 26.08.435; Ord. No. 62588, § 2(part), 1992.)

26.08.436 Utility stations and utility towers.

Infrastructure and/or facilities that need to be located in the area where the service is to be provided, such as water and sewer pump stations; electrical transforming substations; wind energy and sewer pump stations; electrical transforming substations; wind energy conversion systems; water conveyance systems; gas regulating stations; stormwater facilities and conveyance systems; telephone switching equipment; emergency communication warning/broadcast facilities; and other similar uses, but not including those uses defined as wireless facilities per Section 26.08.437 and wireless support structures per Section 26.08.438. (Ord. No. 70942, § 1, 5-2-2019.)

26.08.437 Wireless facility.

Equipment at a fixed location that enables wireless communications between user equipment and a communications network, including equipment associated with wireless communications and radio transceivers, antennas coaxial or fiber-optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration. The term includes small wireless facilities. The term does not include: (a) the structure or improvements on, under, or within which the equipment is collocated; (b) coaxial or fiber-optic cable between wireless support structures or utility poles; (c) coaxial or fiber-optic cable not directly associated with a particular small wireless facility; or (d) a wireline backhaul facility, as defined by Missouri statutes. (Ord. No. 70942, § 1, 5-2-2019.)

26.08.438 Wireless support structure.

A structure, such as a monopole, tower, or building capable of supporting wireless facilities. This definition does not include utility poles. (Ord. No. 70942, § 1, 5-2-2019.)

26.08.440 Yard.

Open space between buildings and the adjoining lot line which is open to the sky unobstructed by a structure other than (1) sills, belt courses and ornamental features not to exceed 4 inches; (2) that portion of cornices or roof overhang and fixed awnings that is 3 feet or less (except that, when a yard is required, cornices, roof overhang and fixed awnings shall not be any closer to any lot line than 2 feet); (3) that portion of open fire escapes, unenclosed porches or balconies that 3 feet or less (except that, when a yard is required, open fire escapes, unenclosed porches or balconies shall not be any closer to any lot line than 3 feet); and (4) ordinary projection of chimneys and pilasters when placed so as not to obstruct light and ventilation. (1994 C., § 26.08.440; Ord. No. 62588, § 2(part), 1992.)

26.08.450 Yard, front.

A yard measured across the width of the entire lot and situated between the front lot line and the nearest portion of the main building other than steps, unenclosed balconies or unenclosed porches. (1994 C., § 26.08.450; Ord. No. 62588, § 2(part), 1992.)

26.08.460 Yard, rear.

A yard measured between the side lot lines, the rear lot line and the nearest portion of the main building other than steps, unenclosed balconies or unenclosed porches. (1994 C., § 26.08.460; Ord. No. 62588, § 2(part), 1992.)

26.08.470 Yard, side.

A yard measured between the side line of the lot and the main building or any projection thereof and extending from the front yard to rear yard. (1994 C., § 26.08.470; Ord. No. 62588, § 2(part), 1992.)

26.08.480 Zoning Administrator.

A position created within the Department of Public Safety and appointed by the Building Commissioner. The position is responsible for administering and enforcing the Zoning Code, in accordance with Chapter 26.88. (1994 C., § 26.08.480; Ord. No. 62588, § 2(part), 1992.)

Chapter 26.12

ZONING DISTRICTS AND BOUNDARIES

Chapters:

26.12.010 Districts established.

26.12.020 District map.

26.12.030 Boundary lines.

26.12.010 Districts established.

In order to regulate and restrict the location and use of buildings and use of land intended for trades, industries, residences or other purposes, to regulate and limit the intensity of the use of lots and the density of population, and to regulate and determine the size of yards, courts and other open spaces within and surrounding buildings, the City is hereby divided into districts of which there shall be twelve (12) in number, known as:

A. Single-family dwelling district. (See Chapter 26.20.)

B. Two-family dwelling district. (See Chapter 26.24.)

C. Multiple-family dwelling district. (See Chapter 26.28.)

D. Multiple-family dwelling district. (See Chapter 26.32.)

E. Multiple-family dwelling district. (See Chapter 26.36.)

F. Neighborhood commercial district. (See Chapter 26.40.)

G. Local commercial and office district. (See Chapter 26.44.)

H. Area commercial district. (See Chapter 26.48.)

I. Central business district. (See Chapter 26.52.)

J. Industrial district. (See Chapter 26.56.)

K. Unrestricted district. (See Chapter 26.60.)

L. Jefferson Memorial district. (See Chapter 26.64.)

(1994 C., § 26.12.010; Ord. No. 59979, § 4(part), 1986.)

26.12.020 District map.

The boundaries of the districts are those shown upon the map designated as the "district map," approved by the Board of Aldermen as part of the Zoning Code, as certified by the signatures of the President and the Clerk of the Board of Aldermen thereon, and filed in the office of the Building Commissioner or such other office or department of the City as may be hereafter provided by ordinance. Said district map and all notations, references and other information shown thereon are a part of the Zoning Code and have the same force and effect as if the district map and all notation, references and other information shown thereon were fully set forth or described in this Code. (1994 C., § 26.12.020; Ord. No. 59979, § 4(part), 1986.)

26.12.030 Boundary lines.

When uncertainty exists with respect to the boundaries of the various districts as shown on the aforesaid district map, the following rules will apply:

A. The district boundaries are either streets or alleys unless otherwise shown. Where the designation on the said district map indicating the various districts are approximately bounded by street or alley lines, the street or alley shall be construed to be boundary of such district.

B. Where the district boundaries are not street or alley lines, and the property has been subdivided into blocks and lots the district boundary lines shall be considered as the rear lot line on all interior lots; provided, however, that at corners of intersecting streets where lots front on the intersecting street the district boundary line shall be considered to extend for a distance of one hundred (100) feet from the corner along the intersecting street.

C. In all other cases the district boundary lines on the said district map shall be determined by use of the scale contained on such district map. (1994 C., § 26.12.030; Ord. No. 59979, § 4(part), 1986.)

City Counselor Ops.: 8600, 9784, 10197

Cases:

This case pertains to the establishment of a nonconforming use and the plaintiff' s attempt to enjoin the enforcing of a zoning classed as residential *Glencoe Lime and Cement Company vs. the City of St. Louis,* 108 S.W. 2d 143 (1937).

Zoning ordinance held not invalid because the district near the complainant's property was one in which the use prohibited to complainant's property was permitted. *Geneva Investment Company v. City of St. Louis,* 87 F. 2d 83, certiorari denied, 301 U.S. 692, 57 S. Ct. 795, 81 L. Ed. 1348 (1937).

Spot zoning ordinance amending general zoning laws by classifying a mortuary as being in a commercial instead of residential district held arbitrary and void. *Mueller vs. C Hoffmeister Undertaking and Livery Company,* 343 Mo. 430, 121 S.W. 2d 775.

Classification of property in zoning ordinance must not be arbitrary or unreasonable and must have some reference to objection state in the law. *City of St. Louis vs. Friedman,* 216 S.W. 2d 475 (1949).

Statute permitting zoning and zoning ordinance enacting under statute by City of St. Louis were valid exercises of police power. *Wippler vs. Hone,* 110 S.W. 2d 409 (1938).

Chapter 26.16

GENERAL ZONING REGULATIONS

Sections:

26.16.010 Uses prohibited.
26.16.020 Structures prohibited.
26.16.030 Open storage prohibited.
26.16.040 Comprehensive Sign Control Regulations.
26.16.050 Changes in nonconforming use.
26.16.060 Discontinuing nonconforming use.
26.16.065 Changes in nonconforming residential buildings.
26.16.070 Damage to nonconforming building.
26.16.080 Off-street parking and loading requirements.
26.16.085 Bicycle parking requirements.
26.16.090 Outdoor drive-in theater in A, B, C, D and E zones.

26.16.010 Uses prohibited.

No structure or land shall be used for a use other than those permitted in the district in which such premises are located unless such use is permitted by other provisions of the Zoning Code. (1994 C., § 26.12.010; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.020 Structures prohibited.

No structure shall be erected, placed, enlarged or structurally altered unless such action shall make the premises upon which it shall stand conform to the regulations for the district in which the premises are located, unless authorized by other provisions of the Zoning Code. (1994 C., § 26.12.020; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.030 Open storage prohibited.

The use of land within any dwelling district for the purpose of open storage is hereby prohibited. (1994 C., § 26.12.030; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.040 Comprehensive Sign Control Regulations.

See Chapter 26.68. (1994 C., § 26.12.040; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.050 Changes in nonconforming use.

If no structural alterations are made, nonconforming use of a building may be changed to another nonconforming use of the same or a more restricted classification. (1994 C., § 26.12.050; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.060 Discontinuing nonconforming use.

In the event a nonconforming use of any structure or premises is discontinued or its normal operation stopped for a period of one (1) year, the use of the same thereafter shall conform to the regulations of the district in which it is located. (1994 C., § 26.12.060; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.065 Changes in nonconforming residential buildings.

A nonconforming residential building may be repaired, renovated, rehabilitated, restored, reconstructed or otherwise altered, except that such repair or other alteration shall not create additional nonconformity or increase the degree of existing nonconformity of all or any part of such building and further except that no nonconforming element may be added to a building or grounds that such was an original element of the building if it was not an element of the building at the time of the permit application. (1994 C., § 26.12.065; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.070 Damage to nonconforming building.

In the event any nonconforming building has been damaged by fire, explosion or other disaster to the extent of sixty percent (60%) or less of its physical value, it may be restored within twelve (12) months, except that when such restoration becomes involved in litigation the time required for such litigation shall not be counted as a part of the twelve (12) months allowed for restoration. When damaged to the extent of more than sixty percent (60%), it may be restored as a conditional use, subject to the provisions of Section 26.80.010. (1994 C., § 26.12.070; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.080 Off-street parking and loading requirements.

A. All hereafter erected buildings shall provide off-street parking and off-street loading facilities in accordance with district regulations. When provided as a combined facility serving two (2) or more buildings or occupancies, such parking facilities shall have an area not less than the total of the separate requirements of each building or occupancy served thereby. Where buildings contain mixed occupancies, the parking and loading facilities shall be provided for each occupancy in accordance with the percentage of area in the building so occupied. Whenever the application of the district regulations results in the requirement of a fraction of a parking space, a whole parking space shall be provided for such fraction. Existing off-street parking or loading facilities shall not hereafter be reduced in size below the requirements of the applicable district regulations.

B. Off-street parking and loading facilities shall not be required of any existing structure or occupancy. No existing structure shall be hereafter used in a manner which will increase the number of off-street parking or loading spaces required under the applicable district regulations, unless space be provided equal to the net increase in such required facilities resulting from alteration, conversion, change in use or increase in total dwelling units.

C. 1. Off-street parking or off-street loading areas in any dwelling district shall not extend beyond the building line or into the front yard area. When provided in non-dwelling districts, it may occupy any open land, including front yards, but no parking structure shall extend beyond the building line in any district. The parking space provided shall be paved with bituminous concrete or equivalent surfacing, clearly marked, and contain adequate entrances and exits, and shall be kept free from dust and be used only for parking. When lighted for nighttime use, no light shall be permitted to cast its light upon any dwelling nearby.

2. Notwithstanding the provisions of Subsection C.1 of this section, vehicles may be parked at anytime on a driveway which is paved with bituminous concrete or equivalent surfacing which is directly connected to a parking or storage structure.

3. Parking on a driveway under the provisions of Subsection C.2 of this section for a period of more than five (5) continuous days is prohibited.

D. The following schedule of parking spaces and layout standards shall apply to all parking facilities provided in the City:

	Angle of parking (in degrees)			
	30	**45**	**60**	**90**
Depth of parking row (in feet)	16	17	17	18
Width—Parking space (in feet)	8.5	8.5	8.5	8.5
Width—Aisle (in feet)	11	13	18	22

Parallel parking spaces shall be at least twenty-two (22) feet in length, and eight (8) feet in width.

E. All parking required in any dwelling district unless otherwise stated in the district regulations shall be located in the main building, in any accessory build-

ing, on the lot occupied by the main building or, except in the A single-family dwelling district and B two-family dwelling district, on an alternative site provided the following conditions are met:

1. Required off-street parking in any dwelling district may be provided as a conditional use on property other than that occupied by the main building; provided that the property on which the parking is located is in the same possession, either by deed, by easement or by long-term lease which has a life or term equal to or exceeding the life of the building occupied by the principal use and in no case less than ninety-nine (99) years, and, further, provided that the parking will be located in an equally or less restricted zoning district. Proof of such deed, easement or long-term lease including covenants which bind the owner and his heirs or assigns to maintain the required number of off-street parking spaces during the existence of the principal use shall be required to be filed with the Zoning Administrator and the City Assessor's Office. At any time that the main building is rendered useless, or if an alternative site, which is just as suitable for off-site parking, becomes available, the Zoning Administrator may allow the recession of the covenant or long-term lease.

2. The off-street parking space(s) shall be provided at a location within a walking distance of one hundred fifty (150) feet of the lot of the main use and shall be accessible by pedestrians. The distance shall be measured from the nearest point of access of the lot occupied by the principal use and the nearest point of the parking space. (1994 C., § 26.12.080; Ord. No. 64054, § 2, 1997; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

26.16.085 Bicycle parking requirements.

A. *Bicycle Rack Construction Requirements.*

1. Bicycle racks shall be made of steel tubing one (1) inch to four (4) inches thick, containing two (2) locking points between one (1) feet and three (3) feet off the ground and a gap near the bottom for pedal clearance, enabling one to lock a bicycle frame and one of the wheels with a standard U-Lock.

2. A bicycle rack must be able to accommodate two (2) bicycles in an upright position. Bicycle racks that support the wheel but not the frame of the bike shall not be used to fulfill a bicycle parking requirement.

3. All creative design racks shall be capable of securing two (2) standard bicycles. The creative design rack shall provide a minimum of two points of contact with the bicycle. The design of a creative rack, including the installation details, shall be reviewed and approved by the Building Commissioner.

4. All bicycle racks shall be securely anchored to the ground or building structure.

B. *Bicycle Rack Site Requirements.*

1. Bicycle racks installed pursuant to and required under this section shall be installed on private property. Bicycle racks installed in public streets or alleys require separate approval from the Streets Department and an encroachment permit from the Board of Public Service and shall not be used to fulfill a bicycle rack site requirement.

2. Bicycle rack shall be at least three (3) feet from any curb, so as not to impede ingress and egress to and from parked vehicles.

3. Bicycle racks shall be at least two (2) feet from the nearest building. Bicycle racks shall allow at least five (5) feet of American Disabilities Act compliant clearance on one or both sides of the rack.

4. Bicycle rack shall be at least two (2) feet from other objects, including, but not limited to, utility vaults, fire hydrants, and street lights.

5. Bicycle rack shall be at least five (5) feet from curb cuts and accessibility ramps.

6. Bicycle rack, including attached bicycle, shall maintain a minimum four (4) feet of unobstructed walkway for pedestrian traffic at all times.

7. Bicycle racks shall not be located directly in front of an exit or entrance of a building.

8. Bicycle racks shall be located in well-lighted, highly visible areas to minimize theft and vandalism.

9. Bicycle racks shall be located no further from the building than the nearest automobile spaces, other than those spaces for persons with disabilities.

10. Safe and convenient means of ingress and egress to bicycle parking facilities shall be provided.

11. Bicycle rack area shall not interfere with accessible paths of travel or accessible parking as required by the Americans with Disabilities Act of 1990, as amended.

12. When a bicycle rack is installed adjacent to another bicycle rack, an aisle separating the racks, with a minimum four (4) feet of clearance measured from tip to tip of bike tires, shall be provided.

13. Bicycle parking spaces adjacent to automobile parking shall be located so as to protect bicycles from damage.

14. In cases where bicycle parking spaces are not visible from the primary street, signage shall be used to direct cyclists safely to the bicycle parking spaces.

15. Indoor bicycle racks provided pursuant to Section 26.16.085(D)(3) shall only be required to meet the construction and site requirements of Subsections A.1 and 4 and B.8, 10, 11 and 13 of this section. In addition, if such racks are installed on a wall of a structure, the bottom of the rack shall not be more than three (3) feet off the ground.

16. In parking lots and parking garages, physical barriers, such as posts or bollards, shall be provided so as to prevent a motor vehicle from striking a parked bicycle.

C. *Bicycle Parking Requirement.* Bicycle racks shall be required in the City of St. Louis for the following actions requiring issuance of a building permit: all new construction and renovations equal to or in excess of $1,000,000. Bicycle racks shall be provided in accordance with the following tables. When calculating the minimum number of bicycle racks required results in a fractional number, a fraction more than one half 1/2) shall be rounded to the next highest whole number:

1. *Multi-Unit Residential.*

Number of Dwelling Units	Required Number of Minimum Bicycle Parking Racks
Less than 12	0
12 or more	1 per every 6 dwelling units

2. *Nonresidential.*

Gross Floor Area	Required Number of Minimum Bicycle Parking Racks
0—6,000 sq. ft.	1
6,001—10,000 sq. ft.	2
Over 10,000 sq. ft.	1 per every additional 10,000 sq. ft.

3. *Industrial and Hotel/Motel.*

Number of Employees	Required Number of Minimum Bicycle Parking Racks
0—20	0
21—50	1
Over 51	1 per every 50 employees

D. *Exemptions.*

1. This section shall not require in excess of twenty (20) bicycle parking racks for any property.

2. The following uses are exempted from the above requirements: funeral homes and mortuaries; car washes and automobile repair shops.

3. In the "I" Central Business District bicycle parking shall not be required, pursuant to Subsections C.1 through 3 of this section. However, if off-street automobile parking is provided, a minimum of one bicycle rack per every twenty off-street automobile parking spaces, or fraction thereof, shall be provided. The required bicycle parking may be provided within an enclosed structure, and shall not be required to be accessible to the general public.

E. *Off-Street Parking Reduction for Bicycle Parking.* The total number of vehicle off-street parking spaces required under the Zoning Code shall be reduced at the ratio of one (1) automobile off-street parking space for each one (1) bicycle space provided. The total number of required automobile off-street parking spaces, however, shall not be reduced by more than ten (10) percent for any newly developed or rehabilitated structure. (1994 C., § 26.12.085; Ord. No. 69148, § 2, 4-4-2012)

26.16.090 Outdoor drive-in theater in A, B, C, D and E zones.

A. No person, firm or corporation shall hereafter establish locate, maintain, and operate an outdoor drive-in theater within eight hundred (800) feet of a district zoned A, B, C, D and E under the Zoning Code of the City.

B. No official or employee of the City shall issue or cause to be issued a certificate of occupancy, license or building permit for the establishment, location, maintenance or operation of an outdoor drive-in theater within eight hundred (800) feet of a district zoned A, B, C, D and E under the Zoning Code of the City.

C. This section shall not be construed to prohibit the operation and maintenance of an outdoor drive-in theater which is established and operating at the time of the passing of this Zoning Code. (1994 C., § 26.12.090; Ord. No. 60163, § 1(part), 1986; Ord. No. 59979, § 5(part), 1986.)

Editor's Note:

Sections 26.16.140 through 26.16.190, added by Ord. 56052, were repealed by Ord. 60163.

Chapter 26.20

"A" SINGLE-FAMILY DWELLING DISTRICT

Prior ordinance history: Ord. 59979

Chapters:

26.20.010	**District regulations.**
26.20.020	**Use regulations.**
26.20.021	**Site requirements for accessory dwelling units.**
26.20.025	**Conditional uses.**
26.20.030	**Parking for multiple dwellings.**
26.20.035	**Parking for hospitals.**
26.20.040	**Parking for places of assembly.**
26.20.050	**Height regulations.**
26.20.060	**Front yard.**
26.20.070	**Side yard.**
26.20.080	**Rear yard.**
26.20.090	**Density of population.**

26.20.010 District regulations.

The regulations set forth in this Chapter are the district regulations in the "A" Single-Family Dwelling District. (1994 C., § 26.20.010; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.010), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Single-family dwellings. Any dwelling is so defined as a single-family residence because it is a house in which eight (8) or fewer unrelated mentally or physically handicapped persons reside, and may also include two (2) additional persons acting as house parents or guardians who need not be related to each other or to any of the mentally or physically handicapped person residing in the home may not be within 1,250 feet of another such home or dwelling.

B. Two-family dwellings which comply with the area and parking regulations of the "B" Two-Family Dwelling District where forty (40) percent or more of the frontage of a street is occupied by either two-family, semi-detached two-family or multiple-family dwellings;

C. Home occupations, subject to the provisions of Section 26.80.060;

D. Publicly owned parks, playgrounds and libraries and privately-owned parks and playgrounds wherein no service is rendered, or activities conducted, as a business;

E. Accessory dwelling unit, attached that meets the site requirements of 26.02.021.

F. Accessory dwelling unit, detached that meets the site requirements of 26.20.021.

G. Accessory structures and uses customarily incidental to any of the above uses except that, if the accessory structure is a garage, it shall only be a private garage that is located not less than sixty (60) feet from the front line nor less than four (4) feet from any side lot line nor exceeding twelve (12) feet in height nor more than five (5) feet from the rear lot line nor less than ten (10) feet from the rear of the dwelling and the wall of the accessory structure closest to the dwelling.

H. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction;

I. Signs—See Chapter 26.68.

J. Babysitting center, but no more than one (1) on either side of the street in the same block.

K. Churches.

L. Any use that is exempted from this Zoning Code by State or federal law.

(1994 C., § 26.20.020; Ord. No. 72036, § 2, 7-11-2025; Ord. No. 70942, § 5, 5-2-2019; Ord. No. 70555, § 1(26.20.020), 6-17-2017; Ord. No. 64868, § 3, 2000; Ord. No. 62588, § 3(part), 1992.)

Cases:

> Group homes are required to apply to City Board of Adjustment before claiming that City failed to accommodate homes as required by Fair Housing Act. *Oxford House-C v. City of St. Louis,* 77 F.3d 249 (8th Cir. 1996).

26.20.021 Site requirements for accessory dwelling units.

A. All accessory dwelling units shall comply with the following site requirements:

1. *Parking.*

a. Off-street parking shall not be required of an accessory dwelling unit.

b. Adding an accessory dwelling unit to any parcel, shall not remove the primary dwelling unit(s)' required off-street parking.

2. *Height.*

a. The height shall not exceed twenty-five (25) feet.

3. *Area.*

a. An accessory dwelling unit may be up to fifty (50) percent of the area of the largest primary dwelling unit on the parcel or seven hundred fifty (750) square feet, whichever is greater.

b. An accessory dwelling unit shall be no more than one thousand two hundred (1,200) square feet.

4. *Density of population.*

a. Only one (1) accessory dwelling unit shall be permitted, per parcel.

b. Adding an accessory dwelling unit shall not change the density regulations for the primary use.

5. *Setbacks.*

a. An accessory dwelling unit shall not be constructed beyond the average front yard line, so established by the frontage.

b. An accessory dwelling unit must be at least three (3) feet from any side lot line.

B. Detached accessory dwelling units shall comply with the following additional site requirements:

1. *Setbacks.*

a. A detached accessory dwelling unit may not be less than ten (10) feet from the rear of the dwelling and the wall of the accessory structure closest to the dwelling.

2. *Nonconforming structure.*

a. The addition of an accessory dwelling unit, to an existing foundation of or above a nonconforming accessory structure or garage, shall be permitted.
(Ord. No. 72036, § 3, 7-11-2025.)

26.20.025 Conditional uses.

The following conditional uses may be allowed in the "A" Single-Family Dwelling District, subject to the provisions of Chapter 26.80:

A. Bed and breakfast guesthouse, subject to the additional provisions of Chapter 8.25;

B. Bed and breakfast homestay, subject to the additional provisions of Chapter 8.25;

C. Cemeteries;

D. Reserved;

E. Farming and truck gardening;

F. Governmental buildings;

G. Greenhouses, providing no product is sold on the premises;

H. Hospitals;

I. Off-street automobile parking facilities;

J. Parking facilities and open lots located between the front yard and the structure;

K. Publicly owned museums and art galleries;

L. Schools;

M. Utility stations and utility towers. (1994 C., § 26.20.025; Ord. No. 70942, § 5, 5-2-2019; Ord. No. 70555, § 1(26.20.025), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.030 Parking for multiple dwellings.

Dwellings shall provide space in the main building, in an accessory building, or on the lot occupied by the main building, sufficient to accommodate one (1) motor car for each dwelling unit. (1994 C., § 26.20.030; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.030), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.035 Parking for hospitals.

Any hospital shall provide parking space within 500 feet of the main building sufficient to accommodate 1 parking space for every 2 beds, plus 1 space for every doctor on the maximum shift. (1994 C., § 26.20.035; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.035), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.040 Parking for places of assembly.

Any arena, auditorium, meeting room, or other structure used principally as a place of public assembly, shall provide parking space within 1,000 feet of the main building or structure sufficient to accommodate 1 parking space for every 3 seats based on maximum seating capacity, except as noted herein.

A. Any athletic field or diamond used principally as a place of public recreation shall provide parking space sufficient to accommodate 10 parking spaces for every diamond or athletic field, or 1 space for every 4 seats, whichever is greater (1 seat is equal to 2 feet of bleacher length).

B. Any gymnasium without bleachers or fixed seating shall provide parking space sufficient to accommodate 1 parking space for every 150 square feet of floor area.

C. Any church shall provide parking space sufficient to accommodate 1 parking space for every 4 seats (1 seat equals 2 feet of bench or pew length).

D. Any school, public or private, including vocational/technical schools shall provide parking space sufficient to accommodate 1 parking space for every classroom and office, plus 1 space for every 5 students over 16 years of age. (1994 C., § 26.20.040; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.040), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.050 Height regulations.

No building hereafter erected shall exceed 2½ stories or 35 feet in height unless two side yards of not less than 10 feet in width are provided, in which case a building may not exceed 3 stories or 45 feet in height. Any church, school or governmental building may be erected to a height not exceeding 85 feet, provided that front and rear yards are increased in depth and the side yards are increased in width beyond the area regulations 1 foot for each foot of height that the building exceeds 35 feet. (1994 C., § 26.20.050; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.050), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.060 Front yard.

When 25 percent of any frontage within the district is improved with dwellings and a majority of such improved frontage has observed a front yard line with a variation in depth of not more than 6 feet, no building hereafter constructed shall project beyond the average front yard line so established except that in no event shall the front yard line be greater than 50 feet. In all other cases, there shall be a front yard line of not less than 25 feet. Through lots shall have a front yard on each street in accordance with this section. On corner lots the frontage shall be on that side of a street on which interior lots have been platted. No accessory building shall project beyond such front yard line. (1994 C., § 26.20.060; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.060), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.070 Side yard.

There shall be provided a side yard of not less than four (4) feet in width on each side of a building, and the total width of both side yards shall be not less than ten (10) feet; provided, however, that lots of record prior to the effective date of this Zoning Code having a width of less than (40) feet, may reduce the total side yard width by an amount equal to one-half (½) the difference between the width of such lot and forty (40) feet, but in no case shall either side yard be less than three (3) feet in width. (1994 C., § 26.20.070; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.070), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.080 Rear yard.

There shall be a rear yard of not less than 25 feet in depth. (1994 C., § 26.20.080; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.080), 6-17-2017; Ord. No. 62588, § 3(part), 1992.)

26.20.090 Density of population.

Except as provided in Section 26.20.020(B), there shall be a lot area of not less than two thousand (2,000) square feet for each dwelling unit. Lots of record prior to the effective date of Ordinance 45309 may be used for one (1) single-family dwelling provided the yard regulations of this section are complied with.
(1994 C., § 26.20.090; Ord. No. 72027, § 1, 7-11-2025; Ord. No. 70942, § 2, 5-2-2019; Ord. No. 70555, § 1(26.20.090), 6-17-2017; Ord. No. 64868, § 4, 2000; Ord. No. 62588, § 3(part), 1992.)

Chapter 26.24

"B" TWO-FAMILY DWELLING DISTRICT

City Counselor Ops.: 7764, 8518, 9406, 10169, 10197

Sections:

26.24.010 District regulations.
26.24.020 Use regulations.
26.24.025 Conditional uses.
26.24.030 Parking regulations.
26.24.040 Height regulations.
26.24.050 Front yard.
26.24.060 Side yard.
26.24.070 Rear yard.
26.24.080 Density of population.

26.24.010 District regulations.

The regulations set forth in this Chapter or set forth elsewhere in the Zoning Code when referred to in this Chapter are the district regulations in the "B" Two-Family Dwelling District. (1994 C., § 26.24.010; Ord. No. 59979, § 7(part), 1986.)

26.24.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "A" Single-Family Dwelling District;

B. Two-family dwellings;

C. Semi-detached two-family dwellings or multiple-family dwellings for not more than four families, which comply with the area and parking regulations of the "C" Multiple-Family Dwelling District, where 40 percent or more of the frontage of a street is occupied by semi-detached two-family or multiple-family dwellings;

D. Conversion town houses;

E. Accessory structures and uses customarily incidental to any of the above uses;

F. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction.

G. Small wireless facility unless prohibited by federal law, federal regulation or a federal agency.

H. Micro wireless facility unless prohibited by federal law, federal regulation or a federal agency. (1994 C., § 26.24.020; Ord. No. 70942, § 3, 5-2-2019; Ord. No. 64868, § 5, 2000; Ord. No. 59979, § 7(part), 1986.)

City Counselor Ops.: 8317, 8318

Cases:

Board did not abuse its discretion in allowing hotel usage in two family dwelling zone. *Beckmeyer v. Beu,* 367 S.W. 2d 9 (1963.)

26.24.025 Conditional uses.

The conditional uses are the same as those in the "A" Single-Family Dwelling District. (1994 C., § 26.24.025; Ord. No. 59979, § 7(part), 1986.)

26.24.030 Parking regulations.

The parking regulations are the same as those in the "A" Single-Family Dwelling District. (1994 C., § 26.24.030; Ord. No. 59979, § 7(part), 1986.)

26.24.040 Height regulations.

The height regulations are the same as those in the "A" Single-Family Dwelling District, except that any church, school, or governmental building may be erected to a height not exceeding eighty-five (85) feet, provided that the side yards are increased in width beyond the area regulations one (1) foot for each three (3) feet of height that the building exceeds thirty-five (35) feet. (1994 C., § 26.24.040; Ord. No. 59979, § 7(part), 1986.)

26.24.050 Front yard.

The front yard regulations are the same as those in the "A" Single-Family Dwelling District. (1994 C., § 26.24.050; Ord. No. 59979, § 7(part), 1986.)

City Counselor Ops.: 8317

26.24.060 Side yard.

The side yard regulations are the same as those in the "A" Single-Family Dwelling District; provided, however, that any structure having two (2) or more dwelling units the principal entrance of which opens upon a side yard and does not face an abutting street shall provide on each side of the building a side yard having a width of not less than eight (8) feet. (1994 C., § 26.24.060; Ord. No. 59979, § 7(part), 1986.)

26.24.070 Rear yard.

The rear yard regulations are the same as those in the A single-family dwelling district. (1994 C., § 26.24.070; Ord. No. 59979, § 7(part), 1986.)

26.24.080 Density of population.

A. Single-family dwellings shall have a lot area of not less than two thousand (2,000) square feet, except that lots of record prior to the effective date of Ordinance 45309 may be used for one (1) single-family dwelling provided the yard regulations of this section are complied with. Other dwellings, except as provided in Section 26.24.020(C), shall have a lot area of not less than one thousand, two hundred fifty (1,250) square feet for each dwelling unit.

B. Conversion town houses dwellings shall not be required to have minimum lot area.
(1994 C., § 26.24.080; Ord. No. 72027, § 1, 7-11-2025; Ord. No. 64868, § 6, 2000; Ord. No. 59979, § 7(part), 1986.)

Chapter 26.28

"C" MULTIPLE-FAMILY DWELLING DISTRICT

Prior ordinance history: Ords. 60483 and 59979

Sections:

26.28.010 District regulations.
26.28.020 Use regulations.
26.28.025 Conditional uses.
26.28.030 Parking regulations.
26.28.040 Parking space.
26.28.050 Height regulations.
26.28.060 Front yard area.
26.28.070 Side yard.
26.28.080 Rear yard.
26.28.090 Density of population.

26.28.010 District regulations.

The regulations set forth in this Chapter or set forth elsewhere in the Zoning Code when referred to in this Chapter are the district regulations in the "C" Multiple-Family Dwelling District. (1994 C., § 26.28.010; Ord. No. 62588, § 4(part), 1992.)

26.28.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "B" Two-Family Dwelling District;

B. Town houses that front wholly and directly upon a public street;

C. Multiple-family dwellings;

D. Parks or playgrounds;

E. Accessory structures and uses customarily incidental to any of the above uses;

F. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction. (1994 C., § 26.28.020; Ord. No. 62588, § 4(part), 1992.)

26.28.025 Conditional uses.

The following conditional uses may be allowed in the "C" Multiple-Family Dwelling District, subject to the provisions of Section 26.28.010:

A. Any uses eligible to be a conditional use in the "B" Two-Family Dwelling district;

B. Bed and breakfast inn, subject to the additional provisions of Chapter 8.25;

C. Day care centers;

D. Town houses where one or more dwelling units front wholly or partially on a private place or upon a court-yard or way through which the owner of the town house dwelling unit has legally guaranteed ingress and egress to a public street or private place. (1994 C., § 26.28.025; Ord. No. 62588, § 4(part), 1992.)

26.28.030 Parking regulations.

The parking standards in "A" Single-Family Dwelling District shall apply, except as modified by Section 26.28.010. (1994 C., § 26.28.030; Ord. No. 62588, § 4(part), 1992.)

26.28.040 Parking space.

Each new multiple-family dwelling shall provide parking space sufficient to accommodate one motor car for each one dwelling unit. Each rehabilitated or reconstructed dwelling shall provide parking space sufficient to accommodate three motor cars for each four dwelling units. Notwithstanding the foregoing two sentences, in the case of multiple-family dwelling constructed exclusively for occupancy by elderly or blind or other physically handicapped person and structurally designed in accordance with specific Federal Housing Administration requirements for such dwellings, the required amount of parking is reduced from the specified ratio by 40 percent if adequate space is provided in the dwelling, in an accessory building, or on the lot to ensure that parking space as otherwise required by zoning district regulations will be available in the event of a change in occupancy. No such parking space, including any interior aisle of any parking lot shall extend into any minimum required rear or side yard area. (1994 C., § 26.28.040; Ord. No. 62588, § 4(part), 1992.)

26.28.050 Height regulations.

Dwelling and accessory structures may not exceed a height of three stories and 45 feet, unless 40 percent or more of the dwellings or accessory structures having the same frontage are higher, in which case a height equal to or less than that greatest height may be used. Any church, school, governmental building or hospital may be erected to a height not exceeding 85 feet, providing the side yards are increased in width beyond the area regulations 1 foot for each 3 feet of height that the buildings exceeds 35 feet. (1994 C., § 26.28.050; Ord. No. 62588, § 4(part), 1992.)

26.28.060 Front yard area.

A. When 25 percent of a frontage within the district is improved with dwellings and a majority of such improved frontage has observed a front yard line with a variation in depth of not more than 6 feet, no building hereafter constructed shall project beyond the average front yard line so established, except that in no event shall the front yard line be greater than 50 feet. If less than 25 percent of such frontage is developed, then a front yard line for such frontage shall be the same as that for any other frontage located within two City blocks, as designated by house numbers in any direction from the site. If no such precedent is available, then the front yard line shall be a minimum of 10 feet, but may not be required to exceed 25 feet from the lot line at the front of the lot.

B. Notwithstanding the preceding paragraph, no front yard shall be required to exceed the average depth of the front yard line in either of the lots abutting, and no front yard line shall be required to be greater than 50 feet from the front lot line. (1994 C., § 26.28.060; Ord. No. 62588, § 4(part), 1992.)

26.28.070 Side yard.

A. All detached dwelling units shall provide a side yard of 4 feet on one side and may provide no side yard

on the other. All attached units shall provide a side yard of 4 feet for one end unit. The other end may provide no side yard. If a yard is provided on both sides of a detached dwelling unit or both ends of attached units, then neither such yard shall be less than 4 feet.

B. All residential accessory structures need not have a side yard except as provided in Section 26.28.080 below.

C. If a side yard of 4 feet is not provided, as permitted above, a maintenance agreement must be granted by the owner of the property abutting that side of the lot prior to zoning approval. (1994 C., § 26.28.070; Ord. No. 62588, § 4(part), 1992.)

26.28.080 Rear yard.

A. There shall be a minimum rear yard of 15 feet unless a side yard of 12 feet is provided, in which case no rear yard shall be required.

B. All residential accessory structures need not have a rear yard.

C. If, as permitted above, no rear yard is provided, a maintenance easement must be granted by the owner of the rear abutting property prior to zoning approval. (1994 C., § 26.28.080; Ord. No. 62588, § 4(part), 1992.)

26.28.090 Density of population.

A. Detached single-family dwelling shall have a lot area of not less than two thousand (2,000) square feet, except that lots of record prior to the effective date of Ordinance 45309 and new lots that equal the average density of the original platted parcels may be used for one single-family dwelling, provided the yard regulations of this section are complied with.

B. Town houses and two-family dwellings shall have a lot area of not less than one thousand (1,000) square feet for each dwelling unit therein.

C. Conversion town houses dwellings shall not be required to have a minimum lot area.

D. Multiple-family dwelling units shall have a lot area of not less than one thousand five hundred (1,500) square feet for each dwelling unit therein, or as was lawfully provided in an existing building prior to rehabilitation.

(1994 C., § 26.28.090; Ord. No. 72027, § 1, 7-11-2025; Ord. No. 62588, § 4(part), 1992.)

Chapter 26.32

"D" MULTIPLE-FAMILY DWELLING DISTRICT

McQuillin:

25.107 et seq. Multiple family dwelling districts

Sections:

26.32.010 District regulations.
26.32.015 Purpose.
26.32.020 Use regulations.
26.32.025 Conditional uses.
26.32.030 Parking regulations.
26.32.040 Reserved.
26.32.045 Parking at hotels.
26.32.050 Height regulations.
26.32.060 Front yard area.
26.32.070 Side yard.
26.32.080 Rear yard.
26.32.090 Density of population.
26.32.100 Reserved.

26.32.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code when referred to in this chapter are the district regulations in the "D" Multiple-Family Dwelling District. (1994 C., § 26.32.010; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.015 Purpose.

The purpose of the "D" Multiple-Family Dwelling District is to maintain older medium density residential districts, to preserve older architectural styles while encouraging a harmonious intermingling of other structures, and to provide for an increased variety and intermixture of uses free from other uses except those both compatible and convenient to the residents of such district. (1994 C., § 26.32.015; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "C" Multiple-Family Dwelling District;

B. A canopy, open at the sides, may be provided in the required yard space of any building, for the shelter of persons entering such building from the street or other designated point of disembarkation from vehicles;

C. Accessory structures and uses customarily incidental to any of the above uses;

D. Temporary buildings for use incidental to construction work, which buildings shall be removed upon the completion or abandonment of the construction. (1994 C., § 26.32.020; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.025 Conditional uses.

The following conditional uses may be allowed in the "D" Multiple-Family Dwelling District subject to the provisions of Section 26.80.010:

A. Any use eligible to be a conditional use in the "C" Multiple-Family Dwelling District;

B. The following neighborhood commercial retail uses, provided that the use is confined to the first floor or basement of the main building:

1. Art galleries and studios;
2. Bakery shops;
3. Barber and beauty shops;
4. Book, magazine, and stationery stores;
5. Drug stores;
6. Dry cleaning pick-up stations (not having on-site processing);
7. Financial institutions;
8. Florists;
9. Gift shops;
10. Hardware stores;

C. Greenhouses;

D. Hotels;

E. Professional and general offices not exceeding three thousand five hundred (3,500) square feet;

F. Penal institutions;

G. Telephone, outdoor pay.

(1994 C., § 26.32.025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 64167, § 3, 1997; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.030 Parking regulations.

The parking standards in "C" Multiple-Family Dwelling District and in Sections 26.32.040 and 26.32.045 shall apply. (1994 C., § 26.32.030; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.040 Reserved.

Editor's Note:

Ord. No. 71928, § 3, approved November 19, 2024, amended the Code by repealing former 26.32.040, which pertained to parking spaces, and derived from the 1994 Code, § 26.32.040; Ord. No. 59979, § 9, of 1986; Ord. No. 60483, § 1, of 1987; and Ord. No. 62183, § 2, of 1990.

26.32.045 Parking at hotels.

Hotels shall provide parking spaces sufficient to accommodate one (1) parking space for each dwelling unit or sleeping room. (1994 C., § 26.32.045; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.050 Height regulations.

Dwellings, hotels and their accessory structures may not exceed a height of three (3) stories and forty-five (45) feet unless forty percent (40%) or more the structures having the same frontage are higher, in which case a height equal to or less than the greatest height may be used. Any church, school, governmental building or hospital may be erected to a height not exceeding eighty-five (85) feet, providing the side yards are increased in width beyond the area regulations one (1) foot for each five (5) feet of height that the building exceeds thirty-five (35) feet. (1994 C., § 26.32.050; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.060 Front yard area.

The front yard regulations are the same as those in the "C" Multiple-Family Dwelling District. (1994 C., § 26.32.060; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.070 Side yard.

A. All detached dwelling units shall provide a side yard of four (4) feet on one (1) side and may provide no side yard on the other. All attached units shall provide a side yard of four (4) feet for one (1) end unit. The other end unit may provide no side yard. If a yard is provided on both sides of a detached dwelling unit or both sides of attached units, then neither such yard shall be less than four (4) feet.

B. All residential accessory structures need not have a side yard except as provided in Section 26.32.080.

C. If a side yard of four (4) feet is not provided, as permitted above, a maintenance easement must be granted by the owner of the property abutting that side of the lot prior to zoning approval.

D. All nonresidential structures and related accessory structures not exceeding three (3) stories or thirty-five (35) feet in height shall have side yards of four (4)

feet. (1994 C., § 26.32.070; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.080 Rear yard.

The rear yard regulations are the same as those in the "C" Multiple-Family Dwelling District. (1994 C., § 26.32.080; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.090 Density of population.

A. Detached single-family dwellings shall have a lot area of not less than two thousand (2,000) square feet, except that lots of record prior to the effective date of Ordinance 45309 and new lots that equal the average density of the original platted parcels may be used for one (1) single-family dwelling, provided the yard regulations of this section are complied with.

B. Town houses and two-family dwellings shall have a lot area of not less than eight hundred fifty (850) square feet for each dwelling unit therein.

C. Conversion town house dwellings shall not be required to have a minimum lot area.

D. Multiple-family dwelling units shall have a lot area of not less than seven hundred fifty (750) square feet for each dwelling unit thereon, or as was lawfully provided in an existing building prior to rehabilitation.

E. All new commercial uses shall have a floor area ratio of not more than 1.5.

(1994 C., § 26.32.090; Ord. No. 72027, § 1, 7-11-2025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 62183, § 2(part), 1990; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 9(part), 1986.)

26.32.100 Reserved.

Editor's Note:

Ord. No. 71928, § 3, approved November 19, 2024, amended the Code by repealing former 26.32.100, which pertained to neighborhood density, and derived from the 1994 Code, § 26.32.100; and Ord. No. 62183, § 2, of 1990.

Chapter 26.36

"E" MULTIPLE-FAMILY DWELLING DISTRICT

McQuillin:

25.107 et seq. Multiple-family dwelling districts.

Sections:

26.36.010 District regulations.
26.36.015 Purpose.
26.36.020 Use regulations.
26.36.025 Conditional uses.
26.36.030 Parking regulations.
26.36.040 Parking at hotels.
26.36.050 Loading at hotels.
26.36.060 Height regulations.
26.36.070 Front yard areas.
26.36.080 Side yard.
26.36.090 Rear yard.
26.36.100 Density of population.

26.36.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code when referred to in this chapter are the district regulations in the "E" multiple-family dwelling district. (1994 C., § 26.36.010; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.015 Purpose.

The purpose of the "E" Multiple-Family Dwelling District is to establish and preserve medium density residential districts, including some high density commercial and residential uses, free from other uses except those of such district. (1994 C., § 26.36.015; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "D" Multiple-Family Dwelling District;

B. Accessory structures and uses customarily incidental to any of the above uses;

C. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction. (1994 C., § 26.36.020; Ord. No. 70812, § 1, 7-16-2018; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.025 Conditional uses.

The following conditional uses may be allowed in the "E" Multiple-Family Dwelling District, subject to the provisions of Section 26.80.010:

A. Any use eligible to be a conditional use in the "D" Multiple-Family Dwelling District;

B. Bakery shops;

C. Barber and beauty shops;

D. Book, magazine, and stationery stores;

E. Butcher shops;

F. Convenience stores;

G. Dry cleaning pick-up stations (no on-site processing);

H. Dry goods shops;

I. Drug stores;

J. Financial institutions;

K. Florists;

L. Funeral parlors;

M. General offices;

N. Gift shops;

O. Grocery and other retail stores not exceeding three thousand five hundred (3,500) square feet;

P. Hardware stores;

Q. Hobby and toy shops;

R. Pet shops;

S. Professional offices;

T. Similar neighborhood commercial uses. (1994 C., § 26.36.025; Ord. No. 69395, § 2, 2-14-2013; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.030 Parking regulations.

The parking standards in "D" Multiple-Family Dwelling District, except as modified by Sections 26.36.040 and 26.36.050, shall apply. (1994 C., § 26.36.030; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.040 Parking at hotels.

Hotels shall provide parking space within five hundred (500) feet of the main building sufficient to accommodate one (1) motor car for each dwelling unit, and one (1) motor car for each four (4) sleeping rooms. (1994 C., § 26.36.040; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.050 Loading at hotels.

Hotels shall provide one (1) loading space of adequate width, length and height to accommodate commercial vehicles servicing such building, which loading space shall be off the streets and alleys. One (1) additional such loading space shall be provided for each additional one hundred thousand (100,000) square feet of floor space in excess of the first one hundred thousand (100,000) square feet of floor space. (1994 C., § 26.36.050; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.060 Height regulations.

Buildings may exceed eight (8) stories or one hundred (100) feet in height provided they are set back from the side yard regulations one (1) foot for each five (5) feet of additional height above eight (8) stories or one hundred (100) feet. The required setback may be provided at the base to permit a vertical structure without physical setback in the upper stories, or the setback may be provided at any one (1) or more floor levels to govern the permitted height above such setback. (1994 C., § 26.36.060; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.070 Front yard areas.

The front yard regulations are the same as those in the "D" Multiple-Family Dwelling District. (1994 C., § 26.36.070; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.080 Side yard.

A. All detached dwellings less than forty-five (45) feet in height shall provide a side yard of four (4) feet on one side and may provide no side yard on the other. All attached dwelling units less than forty-five (45) feet in height shall provide a side yard of four (4) feet for one (1) end unit. The other end may provide no side yard. If a yard is provided on both sides of a detached dwelling unit or both ends of attached units, then neither such yard shall be less than four (4) feet.

B. All nonresidential structures and related accessory structures not exceeding three (3) stories or thirty-five (35) feet in height shall have a minimum side yard of four (4) feet.

C. All other main buildings shall have side yards of not less than five (5) feet and shall have an additional six (6) inches of side yard for every ten (10) feet in height above forty-five (45) feet in the case of residential and thirty-five (35) feet in the case of nonresidential structures.

D. All accessory structures need not have a side yard except as provided in Section 26.36.090.

E. If a side yard of four (4) feet is not provided, as permitted above, a maintenance easement must be granted by the owner of the property abutting that side of the lot prior to zoning approval. (1994 C., § 26.36.080; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.090 Rear yard.

A. For all structures less than forty-five (45) feet in height, there shall be a minimum rear yard of fifteen (15) feet unless a side yard of twelve (12) feet is provided, in which case no rear yard shall be required.

B. All structures over forty-five (45) feet in height shall have a minimum rear yard of twenty (20) feet and there shall be an additional six (6) inches of yard for every ten (10) feet in height over forty-five (45) feet.

C. If no rear yard is provided, as permitted above, a maintenance easement must be granted by the owner of the rear abutting property prior to zoning approval. (1994 C., § 26.36.090; Ord. No. 60483, § 1(part), 1987; Ord. No. 59979, § 10(part), 1986.)

26.36.100 Density of population.

A. Detached single-family dwellings shall have a lot area of not less than two thousand (2,000) square feet, except that lots of record prior to the effective date of Ordinance 45309 and new lots that equal the average density of the original platted parcels may be used for one (1) single-family dwelling, provided the yard regulations of this section are complied with.

B. Town houses and two-family dwellings shall have a lot area of not less than seven hundred fifty (750) square feet for each dwelling unit therein.

C. Conversion town house dwellings shall not be required to have a minimum lot area.

D. Multiple-family dwelling units shall have a lot area of not less than two hundred fifty (250) square feet for each dwelling unit therein.

E. All commercial uses shall have a floor area ratio of not more than 2.0.
(1994 C., § 26.36.100; Ord. No. 72027, § 1, 7-11-2025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 60483, § I(part), 1987; Ord. No. 59979, § 10(part), 1986.)

Chapter 26.40

"F" NEIGHBORHOOD COMMERCIAL DISTRICT

Chapters:

26.40.010 District regulations.
26.40.015 Purpose.
26.40.020 Use regulations.
26.40.025 Conditional uses.
26.40.026 Site requirements for carry-out restaurants.
26.40.027 Site requirement for motor fuel pumping stations.
26.40.030 Parking regulations.
26.40.040 Specific parking and loading regulations.
26.40.050 Height regulations.
26.40.070 Front yard area.
26.40.080 Side yard.
26.40.090 Rear yard.
26.40.100 Density of population.

26.40.010 District regulations.

The regulations set forth in this Chapter or set forth elsewhere in the Zoning Code when referred to in this Chapter are the district regulations in the "F" Neighborhood Commercial District. (1994 C., § 26.40.010; Ord. No. 62588, § 5(part), 1992.)

26.40.015 Purpose.

The purpose of the "F" Neighborhood Commercial District is to establish and preserve those commercial and professional facilities that are especially useful in close proximity to residential areas. The district is designed to provide convenient shopping and servicing establishments for persons residing in the immediate neighborhood to satisfy those basic home and personal shopping and service needs which occur frequently and so require retail and service facilities in relative proximity to places of residence, so long as such uses are compatible with and do not detract from adjacent residential uses. (1994 C., § 26.40.015; Ord. No. 62588, § 5(part), 1992.)

26.40.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "E" Multiple-Family Dwelling District;

B. Art galleries and studios;

C. Bakery shops;

D. Barber and beauty shops;

E. Bed and breakfast guesthouse, subject to the provisions of Chapter 8.25;

F. Bed and breakfast homestay, subject to the provisions of Chapter 8.25;

G. Bed and breakfast inn, subject to the provisions of Chapter 8.25;

H. Bookstores;

I. Butchershops;

J. Computer stores;

K. Drug stores;

L. Dry cleaning stations (not having on-site processing);

M. Financial institutions;

N. Florists;

O. General offices;

P. Grocery and other retail stores;

Q. Hardware stores;

R. Professional offices;

S. Shoe repair shops;

T. Video and record stores;

U. Mixed uses which include any of the permitted residential and commercial uses;

V. Accessory structure and uses customarily incidental to any of the above uses;

W. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction;

X. Any permitted use exceeding 3,500 square feet provided it is not within a commercial structure to be erected, enlarged, structurally altered or moved. (1994 C., § 26.40.020; Ord. No. 62588, § 5(part), 1992.)

26.40.025 Conditional uses.

The following conditional uses may be allowed in the "F" Neighborhood Commercial District, subject to the provisions of Chapter 26.80:

A. Any use eligible to be a conditional use in the "E" Multiple-Family Dwelling District;

B. Arcades, including coin-operated amusement devices, as defined and subject to the additional provisions of Chapter 8.16;

C. Bar and taverns;

D. Bathhouses, including massage establishment(s), as defined and subject to the additional provisions of Chapter 8.24;

E. Billiards and pool rooms, as defined and subject to the additional provisions of Chapter 8.26;

F. Package liquor stores;

G. Parking lots;

H. Pawnbrokers, as defined and subject to the additional provisions of Chapter 8.72;

I. Private clubs or lodges;

J. Restaurants and carry-out restaurants that meet the site requirements specified in Section 26.40.026;

K. Tattoo parlors, as defined and subject to the additional provisions of Chapter 8.97;

L. Theaters;

M. Commercial uses similar to those permitted in Section 26.40.020;

N. Any permitted use which exceeds 3,500 square feet within a commercial structure to be erected, enlarged, structurally altered or moved;

O. Motor fuel pumping stations that meet the site requirements specified in Section 26.40.027;

P. Any permitted or conditional use that utilizes a sales or service window or facility for customers who are in cars;

Q. Any wireless facility not otherwise permitted under Section 26.24.020 unless prohibited by federal law, federal regulation, or a federal agency;

R. Wireless support structures unless prohibited by federal law, federal regulation, or a federal agency. (1994 C., § 26.40.025; Ord. No. 70812, § 2, 7-16-2018; Ord. No. 62588, § 5(part), 1992; Ord. No. 70942, § 4, 5-2-2019.)

26.40.026 Site requirements for carry-out restaurants.

Carry-out restaurants shall comply with the requirements of either of the following numbered paragraphs:

A. The carry-out restaurant is not a carry-out restaurant that sells to customers who are in cars or who consume the sold products in cars parked on the carry-out restaurants premises, nor is it a carry-out restaurant that sells products through a sales window, to customers who are in cars, for immediate consumption by the customer either on or off the premises provided that:

1. The carry-out restaurant does not have any free standing sign;

2. The total square footage of all signs attached to the building does not exceed 150 square feet, nor do signs extend above the roof of the building or extend more than 15 feet in height above grade; and

3. No sign shall have any moving part or be illuminated from any flashing or intermittent source; or

B. The carry-out restaurant is a carry-out restaurant that sells to customers who are in cars or who consume the sold products in cars parked on the carry-out restaurant premises, or is a carry-out restaurant that sells products through a sales window to customers who are in cars for immediate consumption by the customers either on or off the premise provided that:

1. For lots that are contiguous with or directly across a street, alley, public or private easement from a dwelling district:

a. The lot contains a minimum of 20,000 square feet.

b. The carry-out restaurant does not have more than one freestanding sign. Said sign shall not exceed 25 feet in height nor exceed on all faces a total of 150 square feet of sign copy and shall be a minimum of 50 feet from any existing residential use or dwelling district.

c. The total square footage of signs attached to the buildings shall not exceed 100 square feet per side facing a street, nor shall signs attached to any one facade occupy more than one-tenth of the facade, nor shall signs extend above the roof of the buildings or

extend more than 25 feet in height above grade. Buildings on corners facing two streets may have a sign facing each street.

d. A drive through menu board not exceeding 40 square feet per face nor more than 6 feet in height and a separate speaker post in the drive through area and behind the required front yard with a sound system not audible at the lot lines may be erected. Traffic direction signs shall not exceed 4 square feet per facing and 4 feet in height.

e. No sign shall have any moving part or be illuminated from any flashing or intermittent source.

f. A minimum of 15 parking spaces shall be provided on a lot. Parking areas shall be screened at all property line with a 10-foot landscaped strip contiguous with or directly across an alley or public or private easement, other than a public street, from any existing residential use or dwelling district. Parking area screens shall consist of a minimum 2-foot-high berm and a masonry or wood barrier that is at least 70 percent opaque and not less than 6 feet in height and shall be maintained in good order.

g. A landscape strip not less than 3 feet in width shall be provided along all public streets and shall contain 2-foot-high solid landscaping or a masonry wall not less than 2 feet in height except that these elements shall not be required in approved driveways. Street trees shall be installed in the tree lawn, between the public sidewalk and public street, when the tree lawn has sufficient width, or street trees with gates shall be installed in public sidewalks where the sidewalk has sufficient width and is on an earth base with a minimum of 25 feet between trees not including driveways. A minimum of 15% of the lot area shall be landscaped, including screening areas.

h. All parking stalls shall be provided with continuous secured curbing not less than 6 inches high and 18 inches wide to insure careful location of the parked cars.

i. Exterior refuse container enclosures shall have masonry walls not less than 5 feet high and latched doors. All trash disposal containers shall be located on the site in a manner which will establish their permanent location. At a minimum such trash containers shall be located at every entrance and exist to the premises.

j. There shall be no other carry-out restaurant along the same street (or streets in the case of a corner location) nearer than 600 feet unless the average weekday traffic volume along such street or streets is more than 7,500 vehicles per day per carry-out restaurant. However, in no case shall a carry-out restaurant as provided for herein be permitted nearer than 300 feet from another such use on the same side of the street and in no case shall an additional such use be permitted at an intersection if two such uses already exist at that intersection.

k. No vehicular access shall be allowed to any public alley abutting a residential zoning district.

l. Parking area light poles shall be metal or masonry with underground wiring and not exceed 22 feet in height and adjusted so that no more than 0.5 footcandle (measured at grade) falls on any abutting residential lot.

2. For lots that are not contiguous with or directly across a street, alley, public or private easement from any dwelling district:

a. The lot contains a minimum of 20,000 square feet.

b. The restaurant does not have more than one freestanding sign except that carry-out restaurants on a corner facing two public streets may have one freestanding sign per street frontage provided that at least one such frontage is 200 feet or greater. Said sign shall not exceed 25 feet in height plus one foot in height for each additional 1,000 square feet of lot area in excess of 20,000 square feet nor exceed on all faces a total of 200 square feet of sign copy provided that said signs shall not exceed the maximum permitted height for the district.

c. The total square footage of signs attached to the building shall not exceed 200 square feet per side facing a street nor shall signs attached to any one facade occupy more than one-tenth of the facade, nor shall signs extend above the roof of the buildings or extend more than 25 feet in height above grade. Building on corners facing two streets may have a sign facing each street.

d. A drive through menu board not exceeding 40 square feet per face nor more than 6 feet in height and a separate speaker post in the drive through area and behind the required front yard with a sound system not audible at the lot line may be erected. Traffic direction signs shall not exceed 6 square feet per facing and 6 feet in height.

e. No sign shall have any moving part or be illuminated from any flashing or intermitted source.

f. A minimum of 15% parking spaces shall be provided on a lot.

g. A minimum of 10% of the lot area shall be landscaped, including screening areas. A landscaped strip not less than 3 feet in width shall be provided along all public streets and shall contain a 2-foot-high solid landscaping or a masonry wall not less than 2 feet in height except that these elements shall not be required in approved driveways.

h. All parking stalls shall be provided with continuous secured curbing not less than 6 inches high and 18 inches wide to insure careful location of parked cars.

i. Exterior refuse container enclosures shall have masonry walls not less than 6 feet high with latched doors. All trash disposal containers shall be located on the site in a manner which will establish their permanent location. At a minimum such trash containers shall be located at every entrance and exit to the premises.

j. There shall be no other carry-out restaurant along the same street (or streets in the case of a corner location) nearer than 600 feet unless the average weekday traffic volume along such street or streets is more than 7,500 vehicles per day per carry-out restaurant. However, in no case shall a carry-out restaurant as provided for herein be permitted nearer than 300 feet from another such use on the same side of the street and in no case shall an additional such use be permitted at an intersection if two such uses already exist in that intersection.

k. Parking area light poles shall be metal or masonry with underground wiring and not exceed 22 feet in height. (1994 C., § 26.40.026; Ord. No. 69198, § 2, 7-18-2012; Ord. No. 62588, § 5(part), 1992.)

26.40.027 Site requirement for motor fuel pumping stations.

Motor fuel pumping stations shall comply with the requirements in either of the following numbered paragraphs:

A. The motor fuel pumping station is wholly contained within the accessory to a parking facility, provided there are no exterior signs on the premises advertising the motor fuel pumping station location; or

B. All other motor fuel pumping stations provided that:

1. There shall be no other motor fuel pumping station along the same street (or streets in the case of a corner location) nearer than 600 feet unless the average weekday traffic volume along such street or streets is more than 7,500 vehicles per day per station. However, in no case shall a station as provided for herein be permitted nearer than 300 feet from another such use on the same side of the street and in no case shall an additional station be permitted at an intersection if two such stations already exist in that intersection;

2. Not more than one free-standing sign shall be permitted; said sign shall not exceed 25 feet in height nor exceed on all faces a total of 150 square feet of sign copy and shall be a minimum of 50 feet from any existing residential use or dwelling district;

3. The total square frontage of all signs attached to the building shall not exceed 100 square feet, nor shall signs attached to any one facade occupy more than one-tenth of the facade, nor shall signs extend above the roof of the buildings or extend more than 25 feet in height above grade. Two streets may have a sign facing each street;

4. Not more than one sandwich board type sign shall be permitted which shall indicate the types of gasoline for sale and the price thereof. Said sign shall not be placed on or extend into any public right-of-way;

5. All banners, pennants and similar devices designed for temporary outdoor display shall be prohibited. All graphics shall be exhibited as a permanent source or displayed from permanently mounted sign backgrounds;

6. No sign shall have any moving part or be illuminated from any flashing or intermittent source;

7. Stations shall be screened at all property lines contiguous with or directly across an alley or public or private easement, other than a public street, from existing residential uses and dwelling districts. Screens shall consist of a masonry or wood barrier that is at least 70 percent opaque and not less than 6 feet in height and shall be maintained in good order;

8. A trash enclosure, 6 feet in height, constructed of masonry or wood and opaque, shall be provided. Said enclosure shall be enclosed on all sides, and have a solid gate 6 feet in height providing access to the trash area. Trash shall not exceed the height of the enclosure. No trash, including, without limitation, discarded oil cans, batteries, signs, and tires, shall be stored on any section of the site, except within an enclosed structure;

9. All hoist, service racks, accessory sales rack and vending machines shall be maintained within an enclosed building;

10. No driveway shall be closer than 20 feet to any residential use or dwelling district; and

11. No pump island shall be nearer than 20 feet to a property line. (1994 C., § 26.40.027; Ord. No. 69198, § 2, 7-18-2012; Ord. No. 62588, § 5(part), 1992.)

26.40.030 Parking regulations.

The parking in the "E" Multiple Family Dwellings District, except as modified by Section 26.40.040 shall apply. (1994 C., § 26.40.030; Ord. No. 62588, § 5(part), 1992.)

26.40.040 Specific parking and loading regulations.

In addition, the following uses shall provide parking space within 1,000 feet of the main building:

A. Retail stores within floor area of more than 3,000 square feet shall provide parking space sufficient to accommodate one motor car for each 700 square feet of floor area in excess of 3,000 square feet which is actually used for the selling of merchandise.

B. Banks and office buildings with floor area of more than 7,500 square feet shall provide parking space sufficient to accommodate one motor car for each 1,250 square feet of floor area in excess of 7,500 square feet which is actually used for banking purposes or for offices.

C. Restaurants, bars, taverns, and exhibition halls with more than 1,000 square feet of floor area shall provide parking space sufficient to accommodate one motor car for each 200 square feet of floor area in excess of 1,000 square feet which is actually used by patrons or customers for such purposes.

D. Theaters shall provide parking space sufficient to accommodate one motor car for each 12 seats.

E. Mortuaries and funeral homes shall provide parking space sufficient to accommodate three motor cars for each chapel or parlor.

F. Dance halls shall provide parking space sufficient to accommodate one motor car for each 100 square feet of floor area used for dancing.

G. Bowling alleys shall provide parking space sufficient to accommodate 2 motor cars for each alley.

H. All hereinafter erected or enlarged retail stores, food markets, restaurants, bars, taverns, mortuaries, laundries and dry cleaning establishments having or to have more than 5,000 square feet of gross floor area shall provide one loading space, at least 10 feet by 25 feet and having a 14-foot clearance, which shall be located off the public street, alley and sidewalk and on the same lot of the building served. One additional loading space shall be provided for each additional 25,000 square feet or fraction thereof of gross floor area, but not more than 4 such spaces shall be required.

I. Private clubs and lodges shall provide parking space sufficient to accommodate one motor car for each one hundred (100) square feet of floor area used for purposes of dancing, assembly or dining. (1994 C., § 26.40.040; Ord. No. 62588, § 5(part), 1992.)

26.40.050 Height regulations.

No building shall exceed 3 stories or 50 feet in height. Churches, schools, public buildings, hospitals and institutions may be erected to a height exceeding 85 feet. (1994 C., § 26.40.050; Ord. No. 62588, § 5(part), 1992.)

26.40.070 Front yard area.

A. When 25 percent of any frontage within the district is improved with buildings and a majority of such improved frontage has a front yard line variation in depth of not more than 6 feet, no building hereafter constructed shall project beyond the average front yard line so established, except that in no event shall this front yard be greater than 50 feet.

B. Where any frontage is partially in a dwelling district and partially in a commercial district, the front yard regulations of the dwelling district shall apply for that frontage.

C. No front yard shall be required for existing commercial structures located at the intersection of two streets or existing commercial structures which are contiguous with existing commercial structures located at the intersection of two streets for any commercial structures to be erected, enlarged, structurally altered or moved on land formerly occupied by a commercial structure with no front yard located at the intersection of two streets.

D. Residential structures and mixed residential and commercial structures that are not at or contiguous with commercial structure at the intersection of two streets shall have a front yard as set forth in the front yard requirements of the least restrictive adjacent dwelling district.

E. In all other cases no front yard shall be required. (1994 C., § 26.40.070; Ord. No. 62588, § 5(part), 1992.)

26.40.080 Side yard.

A. All residential structures shall meet the side yard requirements (including, without limitation, requirements as to maintenance easements) of the least restrictive adjacent dwelling except when the structure includes commercial uses.

B. All nonresidential structures, mixed commercial and residential structures, and related accessory structures that do not adjoin a dwelling district, require no side yard, but a maintenance easement must be granted the owner of the property abutting each side of a lot having a side yard of less than 4 feet prior to zoning approval; if such structures do adjoin a dwelling district, there shall be a side yard adjoining having a width of no less than 4 feet, unless a maintenance easement is granted by the owner of the property abutting the lot prior to zoning approval. (1994 C., § 26.40.080; Ord. No. 62588, § 5(part), 1992.)

26.40.090 Rear yard.

A. All residential structures shall meet the rear yard requirements of the least restrictive adjacent dwelling district except those which include commercial uses.

B. All nonresidential structures, mixed commercial and residential structures, and related accessory structures require no rear yard setback except that an appropriate space shall be provided to accommodate trash receptacles and loading areas. (1994 C., § 26.40.090; Ord. No. 62588, § 5(part), 1992.)

26.40.100 Density of population.

A. All residential structures hereafter constructed shall meet the density requirements of the least restrictive adjacent dwelling district except where 40 percent or more of the structures having the same frontage is occupied by multiple-family dwellings. In the latter such cases, dwelling shall conform to area regulations of the "D" Multiple-Family Dwelling District.

B. All nonresidential structures, mixed commercial and residential structures shall have a floor area ratio of not more than 1.5. (1994 C., § 26.40.100; Ord. No. 62588, § 5(part), 1992.)

Chapter 26.44

"G" LOCAL COMMERCIAL AND OFFICE DISTRICT

Sections:

26.44.010 District regulations.
26.44.015 Purposes.
26.44.020 Use regulations.
26.44.025 Conditional uses.
26.44.030 Parking and loading regulations.
26.44.040 Specific parking and loading regulations.
26.44.050 Height regulations.
26.44.060 Area dwellings.
26.44.070 Front yard—Nondwellings.
26.44.080 Side yard—Nondwellings.

26.44.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "G" Local Commercial and Office District. (1994 C., § 26.44.010; Ord. No. 59979, § 12(part), 1986.)

26.44.015 Purposes.

The purpose of the "G" Local Commercial and Office District is to establish and preserve areas that accommodate a wide range of businesses catering to the personal and home needs of the general public and to provide for employment activity and service to the public which does not detract from nearby residential uses. (1994 C., § 26.44.015; Ord. No. 59979, § 12(part), 1986.)

26.44.020 Use regulations.

A building or premises shall be used only for the following purposes:

A. Any use permitted in the "F" Neighborhood Commercial District;

B. Bars and taverns;

C. Dyeing and cleaning works;

D. Laundries;

E. Livery stables and riding academies;

F. Milk distributing and bottling plants;

G. Package liquor stores;

H. Printing shops;

I. Restaurants other than carry-out restaurants that operate as described in Section 26.40.026B provided that carry-out restaurants that meet the site requirements specified in Section 20.40.026B2 shall be permitted;

J. Telephone, outdoor pay, if the proposed telephone is not located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district;

K. Tinsmith or sheet metal shops;

L. Wholesale business;

M. Accessory structures and uses customarily incidental to any of the above uses;

N. Temporary buildings for use incident to construction work, which buildings shall be removed upon the completion or abandonment of the construction;

O. Any permitted use exceeding seven thousand (7,000) square feet provided it is not within a commercial structure to be erected, enlarged, structurally altered or moved. (1994 C., § 26.44.020; Ord. No. 64167, § 4, 1997; Ord. No. 59979, § 12(part), 1986.)

26.44.025 Conditional uses.

The following conditional uses may be allowed in the "G" Local Commercial and Office District, subject to the provisions of Section 26.80.010:

A. Any use eligible to be a conditional use in the "F" Neighborhood Commercial District;

B. Commercial use similar to those permitted in Section 26.44.020;

C. Any permitted use which exceeds seven thousand (7,000) square feet within a commercial structure to be erected, enlarged, structurally altered or moved;

D. Any permitted or conditional use which utilizes a sales or service window or facility for customers who are in cars except those carry-out restaurants permitted in Section 26.44.020;

E. Carry-out restaurants other than those carry-out restaurants permitted in Section 26.44.020 and that meet the applicable site requirements specified in Section 26.40.026B1;

F. Telephone, outdoor pay, if the proposed telephone is located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district. (1994 C., § 26.44.025; Ord. No. 64167, § 5, 1997; Ord. No. 59979, § 12(part), 1986.)

26.44.030 Parking and loading regulations.

The parking regulations for uses enumerated in Chapter 26.20 through 26.40 inclusive, except as modified by Section 26.44.040, shall apply. (1994 C., § 26.44.030; Ord. No. 59979, § 12(part), 1986.)

26.44.040 Specific parking and loading regulations.

In addition, parking space shall also be provided for the following uses:

A. Wholesale, manufacturing and industrial buildings shall provide parking space within one thousand (1,000) feet of the main building sufficient to accommodate one (1) motor car for each ten (10) employees regularly employed at the site, based on the greatest number employed at any one period of the day or night.

B. All hereinafter erected or enlarged buildings having or to have more than five thousand (5,000) square feet of gross floor area and used for manufacturing, storage, warehouse, goods display, department store, wholesale store, and other uses involving the receipt or distribution by vehicles of materials or merchandise shall provide one (1) loading space, at least ten (10) feet by twenty-five (25) feet and having a fourteen (14) foot clearance, for each twenty-five thousand (25,000) square feet of gross floor area or fraction thereof in excess of five thousand (5,000) square feet. (1994 C., § 26.44.040; Ord. No. 59979, § 12(part), 1986.)

26.44.050 Height regulations.

The height regulations are the same as those in the "F" Neighborhood Commercial District. (1994 C., § 26.44.050; Ord. No. 59979, § 12(part), 1986.)

26.44.060 Area dwellings.

For dwellings the area regulations are the same as those in the "D" Multiple-Family Dwelling District. For other buildings the following area regulations only shall be required. (1994 C., § 26.44.060; Ord. No. 59979, § 12(part), 1986.)

26.44.070 Front yard—Nondwellings.

The front yard regulations are the same as those in the "F" Neighborhood Commercial District. (1994 C., § 26.44.070; Ord. No. 59979, § 12(part), 1986.)

26.44.080 Side yard—Nondwellings.

A. There shall be a side yard having a width of not less than five (5) feet on that side of a lot which adjoins any dwelling district.

B. Where dwelling accommodations are hereafter created above any nondwelling use there shall be two (2) side yards each of eight (8) feet in width unless every room within that portion of the structure used for dwelling purposes shall open directly upon a front yard or a rear yard of dimensions as required in the "D" Multiple-Family Dwelling District. (1994 C., § 26.44.080; Ord. No. 59979, § 12(part), 1986.)

Chapter 26.48

"H" AREA COMMERCIAL DISTRICT

Sections:

26.48.010 District regulations.

26.48.015 Purpose.
26.48.020 Use regulations.
26.48.025 Conditional uses.
26.48.030 Parking and loading regulations.
26.48.040 Height regulations.
26.48.050 Area regulations.

26.48.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "H" Area Commercial District. (1994 C., § 26.48.010; Ord. No. 70555, § 3(26.48.010), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.015 Purpose.

The purpose of the "H" Area Commercial District is to establish and preserve general commercial areas consisting of shopping centers and commercial strips where customers reach individual business establishments primarily by automobile. This district is intended to provide diversified types of goods and services to a large consumer population coming from an extensive area. Regulations of this district are to facilitate the use of heavily trafficked areas suitable for the operation of businesses catering to the general public, which does not materially detract from nearby residential uses. (1994 C., § 26.48.015; Ord. No. 70555, § 3(26.48.015), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.020 Use regulations.

The use regulations are the same as those in the "G" Local Commercial and Office District, except that for any property located within 1,500 feet of an interstate highway or ramp or right-of-way for the same, the area of any permitted use may exceed seven thousand (7,000) square feet in any commercial structure to be erected, enlarged, structurally altered or moved. (1994 C., § 26.48.020; Ord. No. 70555, § 3(26.48.020), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.025 Conditional uses.

The following conditional uses may be allowed in the "H" Area Commercial District, subject to the provisions of Section 26.80.010:

A. Any use eligible to be a conditional use in the "G" Local Commercial and Office District;

B. Commercial use similar to those permitted in Section 26.48.020;

C. Any permitted or conditional use which utilizes a sales or service window or facility for customers who are in cars except those carry-out restaurants permitted in Section 26.48.020. (1994 C., § 26.48.025; Ord. No. 70555, § 3(26.48.025), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.030 Parking and loading regulations.

The parking regulations are the same for uses enumerated in Chapters 26.20 through 26.44 inclusive. (1994 C., § 26.48.030; Ord. No. 70555, § 3(26.48.030), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.040 Height regulations.

The height regulations are the same as those in the "E" Multiple-Family Dwelling District. (1994 C., § 26.48.040; Ord. No. 70555, § 3(26.48.040), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

26.48.050 Area regulations.

For dwellings the area regulations are the same as those in the "E" Multiple-Family Dwelling District. For other buildings the following area regulations only shall be required.

A. *Front Yard.* The front yard regulations are the same as those in the "F" Neighborhood Commercial District.

B. *Side Yard.*

1. There shall be a side yard having a width of not less than five (5) feet on that side of a lot which adjoins any dwelling district.

2. Where dwelling accommodations are hereafter created above any non-dwelling use there shall be two (2) side yards each of eight (8) feet in width which shall be increased in width six (6) inches for each additional story above the third (3rd) story unless every room within that portion of the structure used for dwelling purposes shall open directly upon a front yard or a rear yard of dimensions as required in the "E" Multiple-Family Dwelling District. (1994 C., § 26.48.050; Ord. No. 70555, § 3(26.48.050), 6-17-2017; Ord. No. 67607, § 2(part), 2007; Ord. No. 59979, § 13(part), 1986.)

Chapter 26.52

"I" CENTRAL BUSINESS DISTRICT

City Counselor Ops.: 9547

McQuillin:

25.110 et seq. Business district

Sections:

26.52.010 District regulations.

26.52.020 Use regulations.

26.52.025 Conditional uses.

26.52.030 Parking and loading regulations.

26.52.040 Height regulations.

26.52.050 Area regulations.

26.52.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "I" Central Business District. (1994 C., § 26.52.010; Ord. No. 59979, § 14(part), 1986.)

26.52.020 Use regulations.

A building or premises may be used for any purpose except the following: abattoir; acetylene gas manufacture; acid manufacture; ammonia, bleaching powder or chlorine manufacture; arsenal; asphalt manufacture or refining; automobile body or fender repair shops; automobile salvage yard; bag cleaning (except when the dustless vacuum process is exclusively employed); blast furnace; boiler works; brick, terra cotta or tile manufacture; candle manufacture; carry-out restaurants that sell to customers in cars or who consume the sold products in cars parked on the carry-out restaurant premises, or sell products through a sales window to customers who are in cars, for immediate consumption by the customer either on or off the premises; celluloid manufacture; cement, gypsum, lime or plaster-of-Paris manufacture; dextrine, glucose and starch manufacture; distillation of bones, coal or wood; dye stuff manufacture (not including chemical dyes); emery, emery cloth and sand paper manufacture; fat rendering; fertilizer manufacture; fireworks or explosive manufacture or storage; flour and grain milling; forge plant; fuel manufacture; gas manufacture or storage; glass manufacture; glue, gelatin or size manufacture; incineration, reduction or dumping of garbage, dead animals, offal or refuse; iron, brass, copper or steel foundry or works (unless gas or electrically operated); lamp black manufacture, match manufacture; meat packing; motor fuel pumping stations (except where wholly contained within and accessory to a parking garage and providing there are no exterior signs on the premises advertising the motor fuel pumping station location); oilcloth or linoleum manufacture; oiled goods manufactured from raw materials; ore reduction; paint materials manufacture; paper and paper pulp manufacture; petroleum products refining (or wholesale storage thereof); potash or washing soda manufacture; proxylin manufacture; rock crushing; rolling mill; rubber or gutta percha manufacture; salt works; saw mill; smelting or refining of metals; soap manufacture from refuse; stockyard, corral or pen; stone mill or quarry; storage of barrels, bottles, iron, junk, rags or scrap paper; stove or shoe polish manufacture; sugar refining; tanning, curing or storage of green salted hides or skins, or leather dressing or coloring; tar distillation or manufacture; tar roofing or water proofing manufacture; telephone, outdoor pay, if the proposed telephone is located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district; tobacco (chewing) manufacture or treatment; used car lots, car leasing or car rental lots; vinegar, sauerkraut or pickle manufacture; wool pulling or scouring; yeast manufacture; any use which is a nuisance per se; any wireless facility prohibited by federal law, federal regulation or a federal agency.

(1994 C., § 26.52.020; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 71004, § 1, 7-25-2019; Ord. No. 70942, § 5, 5-2-2019; Ord. No. 70812, § 3, 7-16-2018; Ord. No. 64167, § 6, 1997; Ord. No. 59979, § 14(part), 1986.)

26.52.025 Conditional uses.

The following conditional uses may be allowed in the "I" Central Business District subject to the provisions of Section 26.80.010:

A. Bathhouses, including massage establishment(s), as defined and subject to the additional provisions of Chapter 8.24;

B. Billiards and pool rooms, as defined and subject to the additional provisions of Chapter 8.26;

C. Day care centers;

D. Hotels;

E. Pawnbrokers, as defined and subject to the additional provisions of Chapter 8.72;

F. Penal institutions;

G. Telephone, outdoor pay, if the proposed telephone is located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district.

(1994 C., § 26.52.025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 71004, § 1, 7-25-2019; Ord. No. 70942, § 5, 5-2-2019; Ord. No. 70812, § 3, 7-16-2018; Ord. No. 64167, § 7, 1997.)

26.52.030 Parking and loading regulations.

No parking regulations shall be required for this district. Loading regulations are the same for uses enumerated in Chapters 26.20 through 26.48, inclusive. (1994 C., § 26.52.030; Ord. No. 59979, § 14(part), 1986.)

26.52.040 Height regulations.

Buildings may be erected to such height that the cubic contents of said building above the established grade shall not exceed the volume of a prism having a base equal to the projected horizontal area of the building and a height of two hundred (200) feet. In the case of buildings occupying a lot having frontage on intersecting streets and which buildings are so designed as to provide a setback or open space at one (1) corner or corners where such street intersections occur, or when such setback begins below the two hundred (200) foot height above the established grade, the volume determined by the above rule may be exceeded by an amount equal to the volume so taken out of the reference prism of two hundred (200) foot height; provided, however, that the total volume of the actual building shall not exceed by more than twenty-five percent (25%) the volume of said reference prism of two hundred (200) foot height. (1994 C., § 26.52.040; Ord. No. 59979, § 14(part), 1986.)

26.52.050 Area regulations.

There shall be a lot area of not less than two hundred and fifty (250) square feet for each dwelling unit up to and including eight (8) stories or one hundred (100) feet in height; thereafter there shall be provided a lot area of not less than one hundred (100) square feet for each additional dwelling unit above eight (8) stories or one hundred (100) feet in height. Sleeping rooms without cooking facilities shall have a lot area of not less than one hundred (100) square feet each. (1994 C., § 26.52.050; Ord. No. 59979, § 14(part), 1986.)

Chapter 26.56

"J" INDUSTRIAL DISTRICT

McQuillin:

25.116 Industrial zones

Sections:

26.56.010 District regulations.
26.56.020 Use regulations.
26.56.025 Conditional uses.
26.56.030 Parking and loading regulations.
26.56.040 Height regulations.
26.56.050 Area regulations.

26.56.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "J" Industrial District. (1994 C., § 26.56.010; Ord. No. 59979, § 15(part), 1986.)

26.56.020 Use regulations.

The use regulations are the same as those in the "I" Central Business District, except that motor fuel pumping stations that meet the site requirements specified in Section 26.40.027 shall be permitted; carry-out restaurants that sell to customers who are in cars or who consume the sold products in cars parked on the carry-out restaurant premises, or sell products through a sales window, to customers who are in cars, for immediate consumption by the customer either on or off the premises that meet the site requirements specified in Section 26.40.026.B.1 or 2 as appropriate shall be permitted; and a building or premises may be used for an automobile body, fender repair shop, used car lot, or car leasing or rental lot; and provided further that no building shall be in any case hereinafter erected nor shall any existing building be converted, reconstructed or structurally altered for dwelling purposes except where forty percent (40%) or more of the frontage is occupied by dwellings. (1994 C., § 26.56.020; Ord. No. 59979, § 15(part), 1986.)

City Counselor Ops.: 10420

26.56.025 Conditional uses.

The following conditional uses may be allowed in the "J" Industrial District subject to the provisions of Section 26.80.010:

A. Bathhouses, including massage establishment(s), as defined and subject to the additional provisions of Chapter 8.24;

B. Billiards and pool rooms, as defined and subject to the additional provisions of Chapter 8.26;

C. Day care centers;

D. Hotels;

E. Pawnbrokers, as defined and subject to the additional provisions of Chapter 8.72;

F. Penal institutions;

G. Telephone, outdoor pay, if the proposed telephone is located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district.

(1994 C., § 26.56.025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 70812, § 4, 7-16-2018; Ord. No. 64167, § 8, 1997.)

26.56.030 Parking and loading regulations.

The parking and loading regulations are the same for uses enumerated in Chapters 26.20 through 26.50, inclusive. (1994 C., § 26.56.030; Ord. No. 59979, § 15(part), 1986.)

26.56.040 Height regulations.

The height regulations are the same as those in the "E" Multiple-Family Dwelling District. (1994 C., § 26.56.040; Ord. No. 59979, § 15(part), 1986.)

City Counselor Ops.: 8311

26.56.050 Area regulations.

The area regulations are the same as those in the "E" Multiple-Family Dwelling District. (1994 C., § 26.56.050; Ord. No. 59979, § 15(part), 1986.)

Chapter 26.60

"K" UNRESTRICTED DISTRICT

Chapters:

26.60.010 District regulations.
26.60.020 Use regulations.
26.60.025 Conditional uses.
26.60.030 Parking and loading regulations.
26.60.040 Height regulations.
26.60.050 Area regulations.

26.60.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "K" Unrestricted District. (1994 C., § 26.60.010; Ord. No. 59979, § 16(part), 1986.)

26.60.020 Use regulations.

In the unrestricted district buildings and premises may be used for any purpose whatsoever not in conflict with any ordinance of the City regulating nuisances or Section 26.60.025, or is not a wireless facility provided that motor fuel pumping stations shall meet the site requirements specified in Section 26.40.027 and carry-out restaurants that sell to customers in cars or who consume the sold products in cars parked on the carry-out restaurant premises, or sell products through a sales window, to customers who are in cars, for immediate consumption by the customer either on or off the premises shall meet the site requirements specified in Section 26.40.026.B.1 or 2 as appropriate. Provided, however, that no building shall be hereafter erected, nor shall any existing building be converted, reconstructed, or structurally altered for dwelling purposes.

(1994 C., § 26.60.020; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 71004, § 2, 7-25-2019; Ord. No. 70942, § 5, 5-2-2019; Ord. No. 70812, § 5, 7-16-2018; Ord. No. 59979, § 16(part), 1986.)

26.60.025 Conditional uses.

The following conditional uses may be allowed in the "K" Unrestricted District, subject to the provisions of Section 26.80.010:

A. Acid manufacture;

B. Day care centers;

C. Bathhouses, including massage establishment(s), as defined and subject to the additional provisions of Chapter 8.24;

D. Billiards and pool rooms, as defined and subject to the additional provisions of Chapter 8.26;

E. Cement, lime, gypsum, or plaster-of-Paris manufacture;

F. Fireworks, exposures, manufacture or storage;

G. Fertilizer manufacture and potash refining;

H. Fuel manufacture;

I. Garbage, offal, or dead animals, reduction or dumping;

J. Glue manufacture, fat rendering, or distillation of bones;

K. Hotels;

L. Pawnbrokers, as defined and subject to the additional provisions of Chapter 8.72;

M. Penal institutions;

N. Petroleum refining;

O. Salvage storage, wholesaling or retailing;

P. Smelting or refining of metals;

Q. Stockyards or abattoir;

R. Telephone, outdoor pay, if the proposed telephone is located on a lot that is located contiguous with or directly across a street, alley, public or private easement from a dwelling district.

(1994 C., § 26.60.025; Ord. No. 71928, § 3, 11-19-2024; Ord. No. 70812, § 6, 7-16-2018; Ord. No. 64167, § 9, 1997; Ord. No. 59979, § 16(part), 1986.)

26.60.030 Parking and loading regulations.

The parking and loading regulations are the same for uses enumerated in Chapters 26.20 through 26.56, inclusive. (1994 C., § 26.60.030; Ord. No. 59979, § 16(part), 1986.)

26.60.040 Height regulations.

The height regulations are the same as those in the "H" Area Commercial District. (1994 C., § 26.60.040; Ord. No. 59979, § 16(part), 1986.)

26.60.050 Area regulations.

The area regulations are the same as those in the "G" Local Commercial and Office District. (1994 C., § 26.60.050; Ord. No. 59979, § 16(part), 1986.)

Chapter 26.64

"L" JEFFERSON MEMORIAL DISTRICT

Chapters:

26.64.010 District regulations.
26.64.020 Use regulations.
26.64.025 Conditional uses.
26.64.030 Parking and loading regulations.
26.64.040 Height regulations.
26.64.050 Area regulations.

26.64.010 District regulations.

The regulations set forth in this chapter or set forth elsewhere in the Zoning Code and referred to in this chapter are the district regulations in the "L" Jefferson Memorial District. (1994 C., § 26.64.010; Ord. No. 59979, § 17(part), 1986.)

26.64.020 Use regulations.

A building or premises may be used for any purpose permitted in the "I" Central Business District. (1994 C., § 26.64.020; Ord. No. 59979, § 17(part), 1986.)

26.64.025 Conditional uses.

The following conditional uses may be allowed in the "L" Jefferson Memorial District, subject to the provisions of Section 26.80.010:

A. Bathhouses, including massage establishment(s), as defined and subject to the additional provisions of Chapter 8.24;

B. Billiards and pool rooms, as defined and subject to the additional provisions of Chapter 8.26;

C. Day care centers;

D. Hotels;

E. Pawnbrokers, as defined and subject to the additional provisions of Chapter 8.72;

F. Penal institutions.

(Ord. No. 71928, § 3, 11-19-2024; Ord. No. 70812, § 7(26.64.025), 7-16-2018.)

26.64.030 Parking and loading regulations.

The loading regulations are the same for uses enumerated in Chapters 26.20 through 26.48, inclusive. No parking regulations shall be required for this district. (1994 C., § 26.64.030; Ord. No. 59979, § 17(part), 1986.)

26.64.040 Height regulations.

The height regulations are the same as those in the "I" Central Business District except that in no instance shall any portion of a building or structure including all appurtenances and super structures thereon, exceed a mean sea level elevation of seven hundred fifty-one (751) feet. It shall be unlawful to increase the height of an existing building or other structures located within this district unless it complies with the regulation of the district. (1994 C., § 26.64.040; Ord. No. 59979, § 17(part), 1986.)

26.64.050 Area regulations.

The area regulations are the same as those in the "I" Central Business District. (1994 C., § 26.64.050; Ord. No. 59979, § 17(part), 1986.)

Chapter 26.66

BED AND BREAKFAST DISTRICTS

Chapters:

26.66.010 Establishment procedure.
26.66.020 Declaration—Filing of copies.
26.66.030 Effect of district designation.
26.66.040 License approval—Generally.
26.66.050 Protests against licenses or applications—When and how initiated.
26.66.060 Protest petitions—Contents—Time for collection of signatures.
26.66.070 Hearing on protest—Notice—Procedure.
26.66.080 Protests—Necessity of majority of signatures on petition protecting continuation of license—Effect.
26.66.090 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.

26.66.100 Extension of protested license.

26.66.110 Withdrawal of signatures from protest petitions.

26.66.010 Establishment procedure.

A bed and breakfast district may be established and designated by ordinance in any area which contains one (1) or more contiguous City blocks, or portions of City blocks in the following manner:

A. No bed and breakfast district bill shall be introduced in or validly enacted by the Board of Aldermen unless such bill is introduced by the Alderman of the ward within which the area of the proposed district is located or, if such area is within more than one (1) ward, by the Alderman of each such ward.

B. Any such bill shall include a description of the boundaries of the proposed district; the City block numbers of those City blocks or portions of City blocks within the proposed district; and an exhibit depicting a general location map of the proposed district; provided, however, that any such proposed district must contain at least one complete City block.

C. For the purposes of this section, the words "contiguous City blocks, or portions of City blocks" means those City blocks numbered by the City which are immediately across a right-of-way from another City block or immediately adjacent diagonally across an intersection of rights-of-way from another City block.

D. After any such bill is introduced in the Board of Aldermen and assigned to the Board's appropriate standing committee, said bill shall not be voted upon by the Board of Aldermen until a public hearing on said bill has been held by said committee. The area to be included in such a proposed bed and breakfast district shall be posted with notice of the public hearing in at least two places on each block within the proposed district no less than seven (7) days prior to the public hearing. (1994 C., § 26.66.010; Ord. No. 62589, § 1, 1992.)

26.66.020 Declaration—Filing of copies.

Upon passage of a bed and breakfast district bill by the Board of Aldermen and approval by the Mayor, the area described within the boundaries contained within the bill shall be declared and established a bed and breakfast district, and the Clerk of the Board of Aldermen shall forthwith file a copy of same with the Board of Public Service and with the Zoning Administrator, who shall maintain a plat of the bed and breakfast district. (1994 C., § 26.66.020; Ord. No. 62589, § 2, 1992.)

26.66.030 Effect of district designation.

A. No person shall own, operate or maintain a bed and breakfast homestay, a bed and breakfast guesthouse, or a bed and breakfast inn within any bed and breakfast district, as set forth in this chapter, without first obtaining a permit from the Board of Public Service and a graduated business license from the License Collector; provided, however, that notwithstanding the provision of any other ordinance, no such person shall be required to file a plat and neighborhood consent petition as a condition for a bed and breakfast establishment permit or license.

B. Notwithstanding the provision of any use regulations for any zoning district, any building or premises within a bed and breakfast district may be used for the purposes of a bed and breakfast establishment as a use by right; provided said building or premises meets and maintains the requirements established in Section Three of Ordinance 62566 (B.B. 355); and provided further that no person shall own, operate, manage or

maintain a bed and breakfast establishment that violates the rules, regulations and requirements of said Section Three of Ordinance 62566 (B.B. 355).

C. The Board of Public Service shall in writing immediately notify the Aldermen of the ward in which any proposed bed and breakfast establishment would be located of the filing of any occupancy permit or license application, and a separate written notice of the time, place and date of the meeting at which the Board of Public Service will consider such application. (1994 C., § 26.66.030; Ord. No. 62589, § 3, 1992.)

26.66.040 License approval—Generally.

If the Board of Public Service finds that the applicant in a bed and breakfast district meets all the requirements of the Ordinances of the City, the Board shall approve the issuance of a license to the applicant, permitting him to conduct such business for a period of one year from the date of issuance of the license, unless the license is revoked or canceled for cause before the expiration of such time. (1994 C., § 26.66.040; Ord. No. 62589, § 4, 1992.)

26.66.050 Protests against licenses or applications—When and how initiated.

A. A protest against issuance, renewal or continuation of a bed and breakfast establishment license issued pursuant to this chapter all be initiated by submission to the Board of Public Service of a written letter of protest signed by either ten (10) or more persons residing or conducting business, or ten (10) or more persons owning property, within a petition circle of the establishment which is the subject of the protest. Said petition circle shall be determined by drawing a circle with a radius of three hundred fifty feet (350′) plus one-half the width of the front of the premises from the center of the premises projected to the streets. A person shall be considered to reside within the petition circle of a premises for which an application for bed and breakfast establishment has been submitted to the Board of Public Service if: (1) his domicile is within the petition circle; and (2) he is registered to vote from an address within the petition circle on the date on which an application is filed. A person shall be considered to conduct a business within the petition circle if he is engaged in any business or professional activity on the main or surface floor of a building and if he leases or rents space for such purpose, or owns property used for such purpose, within the petition circle. Where a corporation is conducting business within the petition circle, the signature of the local managing officer shall, for purposes of this chapter, be considered the signature of a person conducting business within the petition circle. If there are less than twenty (20) property owners within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of property owners within the petition circle. If there are less than twenty (20) persons residing or conducting business within the petition circle of a licensed premises or proposed licensed premises, a protest may be initiated against the license for such premises by a protest letter signed by a majority of the persons residing or conducting business within the petition circle. Such letter shall contain the name and address of the licensed premises or proposed licensed premises which is the subject of the protest, the type of license being protested, and the name of the person who shall serve as the protest representative. Upon verifying that there are sufficient signatures on the protest letter to initiate a protest, the Secretary of the Board of Public Service shall issue protest petitions to the protest representative. He shall also notify the licensee or applicant whose license or application is the subject of the protest, the Alderman for the ward in which the licensed premises is or would be located and the Police Department that a protest has been initiated against the license or application. Such notice shall contain an explanation of the protest procedures as established by this chapter and title, and by the rules and regulations of the Board of Public Service. If the protest is against renewal or continuation of a license notice shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Board of Public Service.

B. A protest shall not be initiated against renewal more than 45 days, nor less than 14 days, prior to the date on which the existing license for the premises which is the subject of the protest is scheduled to expire. A protest may be initiated against continuation of a license at any time during the term of the license, however, any protest letter submitted to the Board of Public Service less than 45 days prior to the date on which the existing license for the premises which is the

subject of the protest is scheduled to expire shall be treated as a protest against renewal of the license. A protest may be initiated against an application for issuance of a license at any time up to the time set for the hearing on such application. The application hearing shall not be postponed because of the filing of a protest against such application; however, the Board of Public Service shall make no decision concerning whether to issue the license applied for until after the conclusion of the protest hearing provided for by the provisions of this chapter. No protest may be initiated against the continuation of a license for a period of six months after the Board has denied, after a hearing, a previous protest against such license. (1994 C., § 26.66.050; Ord. No. 62589, § 5, 1992.)

26.66.060 Protest petitions—Contents—Time for collection of signatures.

A. The Board of Public Service shall promulgate a protest petition form. There shall be a heading on each page of the petition which shall: (1) identify by trade name and address the licensed premises or proposed licensed premises which is the subject of the protest; (2) give the name of the licensee or applicant; (3) state that persons signing the petition are supporting the protest filed against the license or application of the licensee or applicant for the premises named on the petition; and (4) contain such additional information as may be required under the rules and regulations of the Board. No signature appearing on a protest petition shall be considered valid unless the name and address of the person who signed the petition is printed on the face of the petition next to his signature.

B. The Board of Public Service shall not, except for good cause shown, accept any protest petition submitted more than thirty days from the date on which the protest petitions were issued to the protest representatives; except that where the thirtieth day after the date on which the protest petitions were issued falls on a Saturday, Sunday or holiday, the Board shall accept protest petitions filed on the next working day thereafter. (1994 C., § 26.66.060; Ord. No. 62589, § 6, 1992.)

26.66.070 Hearing on protest—Notice—Procedure.

A. After the last date on which protest petitions may be submitted, the Board shall fix a date for a hearing on the protest. Such hearing shall be held not less than twenty, nor more than thirty, days following the last date on which protest petitions may be submitted. The Board shall have power to continue the hearing for good cause. The Board shall not schedule a hearing for a protest against continuation of a license, and shall summarily dismiss such protest where no protest petitions are submitted to him prior to the closure date for submission of protest petitions.

B. The Board shall, at least ten days prior to the date on which the protest hearing is scheduled, cause notice of the time, place and date of the hearing to be served on the licensee or applicant whose license or application is the subject of the protest. If the protest is against renewal or continuation of a license, notice of the protest hearing shall be served at the licensed premises upon either the licensee or any employee, agent or servant of the licensee found upon the licensed premises. If the protest is against an application for a license, service of the notice shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the applicant on the license application submitted to the Board of Public Service. The Board shall also, at least ten days prior to the date on which a protest hearing is scheduled, cause notice of the time, place and date of such hearing to be served upon the protest representative, the Alderman of the ward in which the licensed premises is or would be located, and the Police Department. Service of the notice upon the protest representative shall be made by sending the notice by registered United States mail, return receipt requested, to the address given by the protest representative on the written letter of protest. In addition, the Board shall cause a placard containing the words "HEARING ON PROTEST AGAINST BED AND BREAKFAST ESTABLISHMENT LICENSE IN THIS BLOCK," printed in bold black letters at least 1½ inches in height, to be placed at each end of the block on the side of the street where the licensed premises or the proposed licensed premises which are the subject of the protest hearing is or would be located, unless such placement is not possible. If it is not possible to place said placards in the manner specified in the previous sentence, the person posting the placards shall place the placards in such manner as to give the greatest notice to passersby of the protest hearing. Said placards shall specify in clear and legible lettering the time, place and date of the hearing, the trade name and address of the licensed premises or premises proposed to be licensed, the name of the licensee or applicant whose license or application is the subject of the protest, and the type of license which is the subject of the

protest. Neither the protest representative nor anyone else signing a protest letter or petition shall be liable for the costs of said placarding.

C. At the protest hearing, both the protest representative and the licensee or applicant whose license or application is the subject of the protest shall be entitled to produce testimony under oath and to be represented by counsel, and the Board shall have the power, on his own motion, to subpoena witnesses and to take testimony under oath pertaining to all matters connected with the protest. The Alderman for the ward in which the premises which is the subject of the protest is located, together with the Police Department, shall have the right to be heard at the hearing.

D. The protest hearing shall be a bifurcated proceeding. During the first phase of the hearing, the Board shall consider evidence concerning whether the protest petitions submitted to him contain the signatures of a valid majority of either: (1) persons residing or conducting business within the petition circle of the licensed premises or proposed licensed premises which is the subject of the protest; or (2) persons owning property within said petition circle. The Board shall also consider during the first phase of the hearing any testimony offered concerning the sufficiency of the written protest letter which initiated the protest, including, but not limited to, evidence concerning whether the letter contained sufficient signatures to initiate the protest. After conclusion of the first phase of the hearing the Board shall make a decision as to whether the protest petitions submitted to him contain a valid majority of either persons residing or conducting business, or persons owning property, within the petition circle. He need not, prior to initiation of the second phase of the hearing, make any determination as to the sufficiency of the written protest letter. During the second phase of the hearing, the Board shall consider evidence concerning whether issuance, renewal or continuation of the license which is the subject of the protest would be detrimental to the neighborhood in which the licensed premises is or would be located. (1994 C., § 26.66.070; Ord. No. 62589, § 7, 1992.)

26.66.080 Protests—Necessity of majority of signatures on petition protecting continuation of license—Effect.

A. A protest against continuation of a license may only be sustained by the Board if the protest petitions submitted to it to protest such continuation contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle. If, after the first phase of the hearing is completed, the Board determines that the protest petitions submitted to it in protest of continuation of a license contain the signatures of neither a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest nor a majority of the persons owning property within such petition circle then it shall deny the protest and shall not consider evidence of whether continuation of the license would be detrimental to the neighborhood in which the licensed premises is located.

B. If the Board determines, after the first phase of the hearing is completed, that protest petitions submitted to it to protest an application for a license contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the proposed licensed premises which is the subject of the protest or a majority of the persons owning property within such petition circle, then the Board shall sustain the protest and refuse to grant the license applied for, regardless of any evidence concerning detriment to the neighborhood. (1994 C., § 26.66.080; Ord. No. 62589, § 8, 1992.)

26.66.090 Protests—Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest.

A. If the Board determines after the first phase of the protest hearing that the protest petitions submitted to it contain the signatures of either: (1) a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest; or (2) a majority of the persons owning properly within such petition circle, it shall sustain the protest unless the licensee shows by a preponderance of the evidence submitted at the hearing that renewal or continuation of the license would not be detrimental to the neighborhood in which the licensed premises is located. If the Board determines after the first phase of the protest hearing that the protest petitions submitted to it do not contain the signatures of either a majority of the persons residing or conducting business within the petition circle of the licensed premises which is the subject of the protest or

a majority of the persons owning property within such petition circle, the Board shall deny the protest, unless the protestors show by a preponderance of the relevant evidence submitted at the hearing that issuance or renewal of the license would be detrimental to the neighborhood in which the licensed premises is or would be located.

B. If the Board sustains a protest against issuance of a license it shall refuse to grant such license to the person applying therefor. If it sustains a protest against renewal of a license such license shall not be revoked, but the Board shall refuse to renew such license after it expires. If the Board sustains a protest against continuation of a license it shall cancel such license effective one month after any decision is filed upholding such protest. If the license expires by operation of law before it can be cancelled it shall not be renewed. (1994 C., § 26.66.090; Ord. No. 62589, § 9, 1992.)

26.66.100 Extension of protested license.

Where a protest has been filed against continuation or renewal of a license and the license expires prior to a decision by the Board on the protest, the Board shall grant an extension of the license. If the Board sustains a protest, the extension shall expire on the date on which the decision on the protest is issued. (1994 C., § 26.66.100; Ord. No. 62589, § 10, 1992.)

26.66.110 Withdrawal of signatures from protest petitions.

Any person who has signed a protest petition against the issuance, continuation, or renewal of a license may withdraw his signature from such petition by submitting a letter to the Board requesting withdrawal in person at the hearing. The Board may also allow a person to withdraw his signature from a protest petition if it finds, based upon a preponderance of evidence, that the circulator of a petition threatened or coerced such person or that the circulator made a material misrepresentation of fact concerning the licensed premises or proposed licensed premises to such person. (1994 C., § 26.66.110; Ord. No. 62589, § 11, 1992.)

Chapter 26.68

COMPREHENSIVE SIGN CONTROL REGULATIONS

Editor's Note:

Ord. No. 69198, adopted July 18, 2012, repealed Ch. 26.68 and enacted a new chapter as set out herein. The former Ch. 26.68, §§ 26.68.010—26.68.190, pertained to similar subject matter and derived from Ord. No. 68849, adopted Feb. 14, 2011.

Prior ordinance history: Ords. 59979, 60949, 63858, 64459, 65790 and 68849

Sections:

26.68.010 Scope of chapter.
26.68.015 Purpose.
26.68.020 Definitions.
26.68.030 Reserved.
26.68.050 Reserved.
26.68.055 Signs on vacant City or Land Reutilization Authority of the City of St. Louis-owned properties.
26.68.060 Permits required in all districts.
26.68.070 Signs in historic districts.
26.68.080 Signs in zone districts A, B, C, D, and E.
26.68.090 Signs in zone district F.
26.68.100 Signs in zone districts G and H.
26.68.110 Signs in zone districts J and K.
26.68.120 Signs in zone districts I and L.
26.68.130 Outdoor general advertising devices.
26.68.135 Prohibited use of signs.
26.68.140 Signs for and by nonconforming use in all zone districts.
26.68.150 Nonconforming signs.
26.68.160 Signs in Chapter 353 Development Plans, in signage overlay plan districts and signs with special provisions.
26.68.170 Prohibited signs.
26.68.175 Board-up signage prohibited.
26.68.180 Removal of signs within or on public right-of-way or easement.
26.68.190 Substitution clause.

26.68.010 Scope of chapter.

These regulations shall govern and control the erection, remodeling, enlarging, moving, operation and maintenance of all signs by conforming uses within all zoning districts. Nothing herein contained shall be deemed a waiver of the provisions of any other ordinance or regulation applicable to signs. Signs located in areas governed by several ordinances and/or applicable regulations shall comply with all such ordinances and

regulations. (1994 C., § 26.68.010; Ord. No. 69198, § 4, 7-18-2012.)

26.68.015 Purpose.

In interpreting and applying the provisions of the sign regulations of the Zoning Code, they shall be held to the minimum requirements for the promotion of the public health, traffic safety and convenience, comfort, prosperity, aesthetics and general welfare. (1994 C., § 26.68.015; Ord. No. 69198, § 4, 7-18-2012.)

26.68.020 Definitions.

For the purpose of this chapter the following terms, phrasing, words and their deviations shall have the meaning given herein:

1. *Animation or animated sign.* "Animation or animated sign" means any sign or part of a sign which changes physical position by any movement or rotation, including electronic and video display changed by remote or automatic means.

2. *Area of sign.* The area of a sign shall be measured in conformance with the regulations as herein set forth provided that the structure or bracing of a sign shall be omitted from measurement unless such structure or bracing is made part of the message or face of the sign. Where a sign has two faces at a right angle to the building or street, the area of one face shall determine the area of the sign. Where a sign has two faces not at a right angle to the building or street or has three or more faces, the area of all faces shall determine the area of the sign.

a. *Signs with backing.* The area of all signs with backing or a background, material or otherwise, that is part of the overall sign display shall be measured by determining the sum of the areas of each square, rectangle, triangle, portion of a circle or any combination thereof which creates the smallest single continuous perimeter enclosing the extreme limits of the display surface or face of the sign including all frames, backing, face plates, nonstructural trim or other component parts not otherwise used for support.

b. *Signs without backing.* The area of all signs without backing or a background, material or otherwise, that is part of the overall sign display shall be measured by determining the sum of the area of each square, rectangle, triangle, portion of a circle or any combination thereof which creates the smallest single continuous perimeter enclosing the extreme limits of each work, written representation (including any series of letters), emblems or figures of similar character including all frames, face plates, nonstructural trim or other component parts not otherwise used for support.

c. *All other signs or combinations thereof.* The area of any sign having parts both with and without backing shall be measured by determining the total area of all squares, rectangles, triangles, portions of a circle of any combination thereof constituting the smallest single continuous perimeter enclosing the extreme limits of any of the following combinations: the display surface or face of the sign including all frames, backing, face plates, nonstructural trim or other component parts not otherwise used for support for parts of the sign that have backing and each words, written representation (including any series of letters), emblems or figures or a similar character including all frames, face plates, nonstructural trim or other component parts not otherwise used for support for parts of the sign having no backing.

3. *Building front.* "Building front" means that exterior wall of a building facing the front line of a premises.

4. *Display surface or face.* "Display surface or face" means the area made available by the sign structure for the purpose of displaying the message.

5. *Distance of sign projection.* "Distance of sign projection" means the distance from the exterior wall surface of the building to the display face of a wall sign.

6. *Electronic message center.* "Electronic message center" means a sign or device capable of displaying letters, numbers, words, symbols, figures or images, including graphics, that can be electronically, digitally or mechanically changed by remote or automatic means. This definition includes what is commonly referred to as a "digital" sign or device.

7. *Exterior wall surface.* "Exterior wall structure" means the most exterior part of a wall, sun screen or any screening or material covering a building.

8. *Flashing signs.* "Flashing sign" means any directly or indirectly illuminated sign either stationary or animated, which exhibits changing natural or artificial light or color effects by any means whatsoever, including blinking, fluctuating scrolling or fading.

9. *Ground sign.* "Ground sign" means a sign supported by poles, uprights or braces extending from the ground or an object on the ground but not attached to any part of any building. Height measurement for ground signs shall be from the grade level or the level of the abutting roadway whichever is higher.

10. *Illuminated sign.* "Illuminated sign" means a sign lighted by or exposed to artificial lighting either by lights on the sign or within the sign or directed towards the sign.

a. *Concealed light source.* Internal and external lighting, such as neon tubing, flood lights, thin line and gooseneck reflectors are permitted provided the light source is directed upon the face of the sign and is effectively shielded so as to prevent beams or rays of light from being directed toward any person facing such sign or device upon any public way or street and shall not be of such intensity so as to cause glare or impair the vision of any person upon any public way or street or adjoining premises. Neon tubing shall be enclosed in channels or covered by plastic faces.

b. *Exposed light source.* Internal and external lighting, such as neon tubing and lamps are permitted, provided the intensity of such lighting shall not cause glare or impair the visions of any person, facing such sign or device, upon any public way, street or adjoining premises.

11. *Joint identification sign.* "Joint identification sign" means a sign which serves as a common or collective identification for two (2) or more businesses or industrial uses on the same premises.

12. *Marquee sign.* "Marquee sign" means a sign on or attached to a permanent overhanging shelter that projects from the face of a building and is supported entirely by the building and which sign is painted on or erected against the marquee. Said such signs shall not exceed seven (7) feet in height nor shall they project below the face of the marquee nor lower than ten (10) feet above the sidewalk. A marquee sign may extend the full length but in no case shall it project beyond the ends of the marquee.

13. *On-premises signs.* "On-premises sign" means a sign relating to products, goods, services or uses which are conducted, sold, manufactured, produced, offered or occurs on the same premises as the sign.

14. *Outdoor general advertising device.* "Outdoor general advertising device" means a device maintained by advertising agencies which advertises products of their customers or clients, and all business signs individually or privately owned which are not on the premises of the owner or place of business to which they apply, including wall signs and those otherwise attached to buildings and structures or devices, as well as those not attached to buildings and supported by uprights or braces on the ground.

15. *Projecting sign.* "Projecting sign" means a sign attached to a building at an angle, provided:

a. There is no more than one such sign for each entrance door to a business establishment;

b. It projects no more than five (5) feet from the building;

c. The sign advertises a use which occupies at least eighteen (18) feet of sign frontage;

d. The bottom of the sign is at least ten (10) feet from grade and its top is no higher than whichever of the following is highest: forty (40) feet above grade, or the height of the building at the building line; and

e. No support for a sign shall extend above the cornice line of a building to which it is attached.

The area of a projecting sign is included in the gross area of all allowable signs of the applicable zoning district except ground signs. Only one side of a projecting sign shall be counted in computing the total square feet of a sign.

16. *Roof line.* "Roof line" means the highest point on any building where an exterior wall encloses usable floor area including floor area provided for housing mechanical equipment.

17. *Roof sign.* "Roof sign" means an on-premises sign which projects above the roof line or is located on the roof of a building or structure.

18. *Sign.* "Sign" means any object or device or part thereof situated outdoors which is used to advertise, identify, display, direct or attract attention to an object, person, institution, organization, business product, service, event, or location by any means including words, letters, figures, designs, symbols, fixtures, colors, motion, illumination or projected images.

19. *Sign with backing.* "Sign with backing" means any sign that is displayed upon, against or through any material or color surface or backing that forms an integral part of such display and differentiates the total display from the background against which it is placed.

20. *Sign without backing.* "Sign without backing" means any word, letter, emblem, insignia, figure or similar character or group thereof, that is neither backed by, incorporated in or otherwise made part of any larger display area.

21. *Sign frontage.* "Sign frontage" means the length along a ground floor building front, facing a street or a private way accessible from a street, which is occupied by a separate and distinct use or by the same use which occupies the front of said building.

22. *Street front.* "Street front" means any boundary line of a premises or parcel of land that runs parallel to and within twenty (20) feet of the right-of-way of a street or highway designated and assigned an individual name or number by the legislative action of the municipality.

23. *Street property line.* "Street property line" means a common boundary between private property and a dedicated street or alley.

24. *Temporary sign.* "Temporary sign" means any exterior sign or advertising display constructed of cloth, canvas, fabric, plywood, metal or other material intended to be displayed for a short period of time not in excess of six (6) months.

25. *Wall sign.* "Wall sign" means a sign attached to, painted on, or erected against a wall or parapet wall of a building or structure which extends no more than twenty-four (24) inches from the wall surface upon which it is attached and whose display surface is parallel to the face of the building to which the sign is attached.

26. *Wind sign.* "Wind sign" means any sign in the nature of a series of two (2) or more banners, flags, pennants or other objects or material which call attention to a product or service fastened in such a manner as to move upon being subjected to pressure by wind or breeze.

27. *Window sign.* "Window sign" means a sign which is applied or attached to, or located within three (3) feet of the interior of a window, which sign can be seen through the window from the exterior of the structure. (1994 C., § 26.68.020; Ord. No. 69198, § 4, 7-18-2012.)

26.68.030 Reserved.

26.68.050 Reserved.

26.68.055 Signs on vacant City or Land Reutilization Authority of the City of St. Louis-owned properties.

A. Notwithstanding to the contrary any ordinance, statute, or legal authorization from the City or Land Reutilization Authority, respectively, the placement of any sign on any building or structure owned by the City or the Land Reutilization Authority which is vacant or unoccupied, on any traffic control device or signal or on any utility pole is prohibited.

B. Notification of Violation—Removal Required. Upon receiving a complaint from any person that a sign or advertisement has been placed in violation of this chapter, the Building Commissioner shall issue a notice to the person, partnership or corporation whose name appears on such sign or advertisement requiring such person, partnership or corporation to remove the signage within fifteen (15) days of the date of the notice. Failure to remove the signage with this period of times shall constitute a violation of this section.

C. Penalty for Violation. Any person who is found guilty or who enters a plea of guilty to a violation of this section shall be punished by a fine of not more than $500.00 or by imprisonment of not more than ninety (90) days or by both a fine and imprisonment. (1994 C., § 26.68.055; Ord. No. 69198, § 4, 7-18-2012.)

26.68.060 Permits required in all districts.

No person shall erect a sign not described herein above until a building permit for said sign has been issued by the Building Commissioner stating that said proposed sign complies with the rules and regulations described herein below relating to signs. In addition to other information with regard to said sign as may be required by the Building Commissioner, the applicant must provide a glossy 8" × 10" photograph(s) of the premises where the sign is proposed which adequately shows all existing signs on the premises, and all pertinent information needed to properly review the application as requested by the Building Commissioner. If said sign complies with the herein below rules and regulations, the permit may be issued by the Building Commissioner if said sign also complies with all applicable provisions of the Building Code of the City; if said sign fails to comply with the rules and regulations set out herein below said permit shall not be issued, regardless of whether said sign complies with all provisions of the Building Code of the City. (1994 C., § 26.68.060; Ord. No. 69198, § 4, 7-18-2012.)

26.68.070 Signs in historic districts.

No sign shall be erected within a district which has been zoned an historic district, unless said sign meets and satisfies an requirements of the applicable historic district ordinance and accompanying development plan, which ordinance has been approved by the Board of Aldermen and the Mayor of the City. (1994 C., § 26.68.070; Ord. No. 69198, § 4, 7-18-2012.)

26.68.080 Signs in zone districts A, B, C, D, and E.

A. *General.* On premises signs may be erected, altered and maintained only for and by a conforming

use in the district in which the signs are located; shall be located on the same premises as the conforming use and shall be clearly incidental, customary and commonly associated with the operation of the conforming use; provided, however, that no sign of any type shall be erected or maintained for or by a single unit dwelling.

B. *Permitted Contents.* Identification by letter, numeral, symbol or design of the conforming use by name, use, hours of operation, services offered and events.

C. *Permitted Sign Types.* Wall, window and ground.

D. *Permitted Maximum Number.* One (1) sign for each front line of the premises on which the conforming use is located.

E. *Permitted Maximum Sign Area.*

1. *Hotel and Motel.* No one sign shall exceed thirty (30) square feet.

2. *All other uses.* Total signage shall not exceed thirty (30) square feet.

F. *Permitted Maximum Height.*

1. *Wall and Window Signs.* The roof line of the building to which the sign is attached.

2. *Ground Signs.* Six (6) feet above grade.

G. *Permitted Location.*

1. *Wall and Window Signs.* Shall be set back from the boundary lines of the premises on which they are located, the same distance as a building containing a conforming use; provided, however, wall signs may project into the required setback space the permitted depth of the sign;

2. *Ground Signs.* Shall be set in at least ten (10) feet from every boundary line of the premises or shall be set in on a line parallel with the exterior line of any building on the said premises.

H. *Permitted Illumination.* May be illuminated but only from a concealed light source, shall not remain illuminated between the hours of 12:00 a.m. and 6:00 a.m., and shall not flash, blink, fade, scroll or fluctuate.

I. *Animation.* Shall not be animated. (1994 C., § 26.68.080; Ord. No. 69198, § 4, 7-18-2012.)

26.68.090 Signs in zone district F.

A. *General.* On premises signs may be erected, altered or reconstructed only for and by a conforming use in the district in which the signs are located; shall be located on the same property as the conforming use and shall be clearly incidental, customary and commonly associated with the operation of the conforming use; provided, however, that no sign of any type shall be erected or maintained for or by a single unit dwelling except signs identifying home occupations.

B. *Permitted Contents.* Identification by letters, numeral, symbol or design of the conforming use, by name, use, hours of operation, services offered and events.

C. *Permitted Sign Types.* Wall, window, ground, marquee and roof signs are permitted. Projecting signs that comply with the provisions in the definition section, designated as Section 26.68.020(15)(a—e), are permitted.

D. *Permitted Maximum Sign Area.*

1. Hotel and Motel. No one sign shall exceed two hundred (200) square feet.

2. All Other Uses. The total area in square feet of all on-premises signs on a sign frontage, except for free-standing signs shall not exceed:

Average Distance of Sign from Center Line of Abutting Street	Sign Frontage Multiplied by
Less than 100	2*
100—399	4
400 and over	5

*Excepting that a use with less than twenty-five (25) feet of sign frontage may have a maximum of fifty (50) square feet of on-premises signs.

3. The distance of a sign on or under a canopy, marquee or awning from the center line of an abutting street shall be constructed to be the same as if such sign were attached to the building to which the said canopy, marquee or awning is attached.

4. If the first floor of a building is substantially above street grade and the basement is only partially below street grade, separate occupants of each level may each have one-half (½) the square feet of signage to which use would be entitled if it were a single ground floor use.

5. If a building fronts on two (2) or more streets, the sign area for each street frontage shall be computed separately.

6. If the ground sign has two (2) faces the area of each face shall not exceed seventy-five (75) square feet; if a ground sign has more than two (2) faces the total of all faces shall not exceed one hundred fifty (150) square feet. A premise with a front line of two hundred (200) feet or more may have two (2) ground signs.

E. *Permitted Maximum Height.*

1. *Wall and Window Signs.* The roof line of the building to which the sign is attached.

2. *Ground Signs.* Shall not exceed thirty (30) feet above grade.

3. *Roof Signs.* Including the supporting structures fifty percent (50%) of the building height on which they are erected but a maximum height of five (5) feet above roof line, or parapet wall if it is higher than the roof line. Further, there must be a clear space of not less than four (4) feet between the lowest part of the sign and roof level, except for necessary structural supports, if sign is over one hundred (100) square feet in size. If such clearance is necessary said sign cannot exceed nine (9) feet above roof line or parapet wall. If sign is less than one hundred (100) square feet no such clearance is necessary.

F. *Permitted Location.*

1. *Wall and Window Signs.* Shall be set in from the boundary lines of the premises on which it is located, the same distance as a building containing a conforming use; provided, however, wall signs may project into the required setback space the permitted depth of the sign.

2. *Ground Signs.* Shall be set in at least three (3) feet from every boundary line of the premises.

G. *Permitted Illumination. Concealed or exposed light source.* No sign shall be illuminated that it interferes with the effectiveness of an official traffic sign, signal or device; illumination shall not flash, blink, fade, scroll or fluctuate.

H. *Animation.* Shall not be animated. (1994 C., § 26.68.090; Ord. No. 69198, § 4, 7-18-2012.)

26.68.100 Signs in zone districts G and H.

A. *General.* On premises signs may be erected, altered or reconstructed only for and by a conforming use in the district in which the signs are located; shall be located on the same premises as the conforming use; and shall be clearly incidental, customary and commonly associated with the operation of the conforming use.

B. *Permitted Contents.* Identification by letter, numeral, symbol and design of the conforming use by name, use, hours of operation, services and products offered, events and prices of products and services.

C. *Permitted Sign Types.* Wall, window, ground, marquee and roof signs are permitted. Projecting signs that comply with the provisions in the definition section, designated as Section 26.68.020(15)(a—e), are permitted.

D. *Permitted Maximum Sign Area.*

1. Hotels and Motels. On premises having a linear street frontage of one hundred (100) feet or less: one hundred (100) square feet; on premises having a linear street frontage of more than one hundred feet: one (1) square foot of street front; provided, however, computations shall be made and sign area shall be made and sign area shall be determined on each street front separately, and provided, further, that in no event shall more than three hundred (300) square feet of sign area be applied to any one (1) street front and no sign shall exceed three hundred (300) square feet in size.

2. All Other Uses. The total area in square feet of all on-premises signs on a sign frontage, except for free-standing signs, shall not exceed:

Average Distance of Sign from Center Line of Abutting Street	Sign Frontage Multiplied by
Less than 100	3*
100—399	4
400 and over	5

*Excepting that a use with less than twenty-five (25) feet of sign frontage may have a maximum of fifty (50) square feet of on-premises signs.

3. The distance of a sign on or under a canopy, marquee and awning from the center line of an abutting street shall be construed to be the same as if such sign were attached to the building to which the said canopy, marquee or awning is attached.

4. If the first floor of a building is substantially above street grade and the basement is only partially below street grade, separate occupants of each level may each have one-half (½) the square feet of signage to which use would be entitled if it were a single ground floor use.

5. If a building fronts on two (2) or more streets, the sign area for each street frontage shall be computed separately.

6. If the ground sign has two (2) faces the area of each face shall not exceed one hundred (100) square feet; if a ground sign has more than two (2) faces the total of all faces shall not exceed two hundred (200) square feet. A premises with a front line of two hundred (200) feet or more may have two (2) ground signs.

E. *Permitted Maximum Height.*

1. *Wall and Window Signs.* The roof line of the building to which the sign is attached.

2. *Ground Signs.* Shall not exceed thirty (30) feet above grade.

3. *Roof Signs.* Including the supporting structures fifty percent (50%) of the building height on which they are erected but a maximum height of ten (10) feet above roof line, or parapet wall if it is higher than the roof line. Further, there must be a clear space of not less than four (4) feet between the lowest part of the sign and the roof level, except for necessary structural supports, if sign is over one hundred (100) square feet in size. If such clearance is necessary said sign cannot exceed fourteen (14) feet above roof line or parapet wall. If sign is less than one hundred (100) square feet no such clearance is necessary.

F. *Permitted Location.* Ground signs shall be set in at least three (3) feet from every boundary line of the premises. Provided, however, wall signs may project into the required setback space the permitted depth of the sign.

G. *Permitted Illumination.* Concealed or exposed light source. No sign shall be illuminated that it interferes with the effectiveness of an official traffic sign, signal or device. Illumination shall not flash, blink, fade, scroll or fluctuate.

H. *Animation.* May be animated unless the Building Commissioner shall determine that animation will constitute a distraction to traffic or a source of undue annoyance to adjoining uses.

I. *Joint Identification Signs.* Subject to the conditions hereinafter set forth and upon application to and issuance by the Building Commissioner of a sign permit therefor, joint identification signs are permitted for three (3) or more conforming uses on the same premises as the sign, excluding parking. The following joint identification signs are in addition to all other signs:

1. *Permitted Sign Types of Joint Identification Signs.* Wall and ground.

2. *Permitted Maximum Number of Joint Identification Signs.* One (1) sign for each front line of the premises.

3. *Permitted Area of Joint Identification Signs.* The greater number of the following: (1) one hundred (100) square feet or (2) two (2) square feet of sign area for each linear foot of street frontage on the premises; provided, however, that the total area of all signs on each front line of the premises shall not exceed two hundred (200) square feet.

4. *Permitted Maximum Height Above Grade of Joint Identification Signs.* Thirty-five (35) feet.

5. *Permitted Location of Joint Identification Signs.* Shall be set in at least three (3) feet from every boundary line of the premises.

6. *Permitted Illumination of Joint Identification Signs.* May be illuminated but shall not flash, blink, fade, scroll or fluctuate and shall only be illuminated by a concealed or exposed light source.

7. *Animation of Joint Identification Signs.* Shall not be animated. (1994 C., § 26.68.100; Ord. No. 69198, § 4, 7-18-2012.)

26.68.110 Signs in zone districts J and K.

A. *General.* On premises signs may be erected or altered and reconstructed only for and by a conforming use in the district in which the signs are located; shall be located on the same premises as the conforming use and shall be clearly incidental, customary and commonly associated with the operation of the conforming use.

B. *Permitted Contents.* Identification by letter, numeral, symbol or design of the conforming use by name, use, hours of operation, services and products offered, events and prices of products and services.

C. *Permitted Sign Types.* Wall, window, roof, projecting, marquee ground and electronic message center signs, provided such electronic message center signs meet the following criteria;

1. The sign shall not flash, blink, fade, scroll, fluctuate or have animation and shall only be illuminated by a concealed or exposed light source.

2. Each message on the sign shall be displayed for a minimum of five (5) minutes.

3. The sign shall not be located within five hundred (500) feet of any premises used as a dwelling unit or zoned residential.

4. Only one (1) such sign shall be allowed and the electronic message center portion of such sign size shall not exceed ten (10) square feet per side and no letter or numeral on any sign shall exceed ten (10) inches by 14 (fourteen) inches in size. No sign shall have more than two sides.

D. *Permitted Maximum Sign Area.* The total area in square feet of all on premises signs on a sign frontage, except for free-standing signs shall not exceed:

Average Distance of Sign from Center Line of Abutting Street	Sign Frontage Multiplied by
Less than 100	4*
100—399	5
400 and over	6

*Excepting that a use with less than twenty-five (25) feet of sign frontage may have a maximum of fifty (50) square feet of permanent signs.)

1. The distance of a sign on or under a canopy, marquee or awning from the center line of an abutting street shall be construed to be the same as if such sign were attached to the building to which the said canopy, marquee or awning is attached.

2. If the first floor of a building is substantially above street grade and the basement is only partially below street grade, separate occupants of each level may each have one-half (½) the square feet of signage to which use would be entitled if it were a single ground floor use.

3. If a building fronts on two (2) or more streets, the sign area for each street frontage shall be computed separately.

4. If the ground sign has two (2) faces the area of each face shall not exceed one hundred twenty-five (125) square feet; if a ground sign has more than two (2) faces the total of all faces shall not exceed one hundred fifty (150) square feet. A premise with a front line of two hundred fifty (250) feet or more may have two (2) ground signs.

5. Roof signs shall be limited to one (1) per building except in the case of a group of buildings under the same ownership, one (1) per building group.

E. *Permitted Maximum Height.*

1. *Wall and Window Signs.* The roof line of the building to which the sign is attached.

2. *Ground Signs.* Fifty (50) feet above grade.

3. *Roof Signs.* Including the supporting structures fifty percent (50%) of the building height on which they are erected but a maximum height of thirty-five (35) feet above roof line, or parapet wall if it is higher than the roof line. Further, there must be a clear space of no less than four (4) feet between the lowest part of the sign and the roof level, except for necessary structural support, if sign is over one hundred (100) square feet in size. If such clearance is necessary said sign cannot exceed thirty-nine (39) feet above roof line or parapet wall. If sign is less than one hundred (100) square feet no such clearance is necessary.

F. *Permitted Location.*

1. *Wall and Window Signs.* Set back from the boundary lines of the premises on which it is located, the same distance as a structure containing a conforming use; provided, however, wall signs may project into the required setback space and permitted depth of the sign.

2. *Ground Signs.* Any location provided that the sign is at least three (3) feet from any boundary line of the premises on which the conforming use is located.

G. *Permitted Illumination.* May be illuminated but shall not flash, blink, fade, scroll or fluctuate and shall be illuminated by a concealed or exposed light source. (1994 C., § 26.68.110; Ord. No. 69198, § 4, 7-18-2012.)

26.68.120 Signs in zone districts I and L.

A. *General.* Signs may be erected, altered and maintained only for and by a conforming use in the district in which the signs are located; shall be located on the same premises as the conforming use and shall be clearly incidental, customary and commonly associated with the operation of the conforming use.

B. *Permitted Contents.* Identification by letter, numeral, symbol or design of the conforming use by name, use, hours of operation, services and products offered, events and prices of products and services.

C. *Permitted Sign Types.* Window signs; wall signs other than wall signs which are painted on the side of a building. Ground signs which denote names, entrances, exits, rates and hours of operation for parking lots. Projecting signs that comply with the provisions outlined in the definition section—Section 26.68.020(15)(a—e).

D. *Permitted Maximum Sign Area.* The total area in square feet of all on premises signs on a sign frontage, except for freestanding signs, shall not exceed:

Average Distance of Sign from Center Line of Abutting Street	Sign Frontage Multiplied by
Less than 100	3*
100—399	4
400 and over	5

*Excepting that a use with less than twenty-five (25) feet of sign frontage may have a maximum of fifty (50) square feet of on-premises signs.

1. The distance of a sign on or under a canopy, marquee or awning from the center line of an abutting

street shall be construed to be the same as if such sign were attached to the building to which the said canopy, marquee or awning is attached.

2. If the first floor of a building is substantially above street grade and the basement is only partially below street grade, separate occupants of each level may each have one-half (½) the square feet of signage to which use would be entitled if it were a single ground floor use.

3. If the building fronts on two (2) or more streets, the sign area for each street frontage shall be computed separately.

4. A parking lot ground sign in zone district I or L shall have no more than two (2) faces and the area of each face shall not exceed thirty (30) square feet.

E. *Permitted Maximum Height.*

1. *Wall and Window Signs.* The roof line of the building to which the sign is attached.

2. *Ground Signs.* Twenty (20) feet above grade.

F. *Permitted Location.*

1. *Wall and Window Signs.* Shall be set back from the boundary lines of the premises on which it is located, the same distance as a structure containing a conforming use; provided, however, wall signs may project into the required setback space the permitted depth of the sign.

2. *Ground Signs.* Any location.

G. *Permitted Illumination.* May be illuminated by a concealed or exposed source but shall not flash, blink, fade, scroll or fluctuate.

H. *Animation.* Shall not be animated. (1994 C., § 26.68.120; Ord. No. 69198, § 4, 7-18-2012.)

26.68.130 Outdoor general advertising devices.

A. *Prohibited.* The erection and maintenance of outdoor general advertising devices are non-conforming and prohibited in all districts except as may be allowed pursuant to the provisions of this chapter.

B. *Nonconforming.* Any device lawfully existing prior to March 11, 1988, or prior to the effective date of the ordinance codified in this chapter, but could not be erected in accordance with the provisions herein shall be deemed nonconforming, but may continue in accordance with the following conditions.

1. *Destruction, Damage or Obsolescence.* The right to maintain any non-conforming device shall terminate and shall cease to exist whenever the device is damaged over 60% of its value or destroyed, from any cause whatsoever, or became obsolete or substandard under any ordinance regulating such devices to the extent that the device becomes a hazard or a danger.

2. *Changes.*

a. *Message.* The message of the device may be changed or modified without a permit, subject to all other provisions herein, provided the area of the device is not enlarged, the height or depth of the sign increased or any portion of the device structurally altered.

b. *Maintenance.* Permits shall be obtained pursuant to applicable City ordinance(s) for any alterations (other than changing or modifying the message), electrical work or repairs.

c. *Damage.* Any device that is damaged in excess of 60% of the device shall be deemed unlawful and shall be immediately removed. If the device is not damaged more than 60%, then it may be maintained and repaired pursuant to the maintenance provisions above.

3. *Ownership.* There may be a change in tenancy, ownership or management of a nonconforming device provided there is no change in the area or height of such device.

4. *By Discontinuation.* Discontinuation of a device shall mean the absence of any commercial advertisement or public information message and the discontinuation of any device for a period of sixty days or more regardless of any intent to resume or not to abandon such use or device shall be considered abandonment of use and that device for rent is not considered a continued use under this subsection.

5. *By Relocation.* Unless it is a device under a settlement agreement with the City of St. Louis, any device that is moved or relocated for any reason for any distance whatever, shall become an unlawful device and shall be removed immediately. Devices that are subject to the terms of a settlement agreement with the City of St. Louis may be relocated pursuant to the terms of the agreement and if the relocation site is a conforming site with the State of Missouri as of March 15, 2011.

6. *By Violation of Law.* Any violation of ordinance, state or federal statute shall terminate immediately the right to maintain such device.

7. *Replacement.* A nonconforming device may be replaced with a permit if the replacement device is at the exact same location, of the same kind/type of device, operates in the same manner, has no greater area, no greater height, and has the same or less number of faces than the existing nonconforming device. This

provision shall not apply to devices that have been discontinued, per Section 26.68.130.B.4 of the City of St. Louis Revised Code, and those discontinued devices shall be removed and shall not be replaced.

8. *Removal.* Any device that loses its nonconforming status shall be removed within seven (7) days of such loss of nonconforming status by the owner of the device or the owner of the property on which the device is located. If the device is not removed within said seven (7) days, the Building Commission may remove said device and charge the owner of the device for said removal and the City of St. Louis may also place a lien on the property on which the device is located.

C. *Exemptions.* The following devices are hereby exempted from the provisions of this chapter:

1. All on-premises signs;
2. Repealed;
3. Repealed;
4. Notice of any judicial or public proceeding posted by public officers or employees in the performance of their duties pursuant to laws, ordinances, orders of the court, regulations, policies and procedures;
5. Repealed;
6. Signs required or specifically authorized for a public purpose by a law, statute, regulation or ordinance;
7. Signs of government, public utility, public service, railroad companies, or their contractors which aid safety, indicate installations or repairs, or which show the location of underground facilities;
8. Devices that encroach the public right-of-way that have been lawfully erected;
9. Repealed;
10. Pursuant to RSMo 226.500 to 226.600 (Supp. 1993), any lawfully erected or proposed device located within six hundred sixty feet of the nearest edge of the right-of-way of any interstate or primary highway in areas zoned commercial or industrial subject to the following regulations which are consistent with said Missouri statutes and customary use in the City of St. Louis:

a. The City of St. Louis shall not issue a permit to allow a device to be newly erected without having the requisite permit issued by the Missouri Highways and Transportation Commission;

b. Lighting.

i. No revolving or rotating beam or beacon of light that simulates an emergency light or device shall be permitted as part of any sign. No flashing, intermittent, or moving light or lights will be permitted except scoreboards and other illuminated signs designating public service information, such as time, date, or temperature, or similar information, will be allowed; trivision, electronic, digital, projection or other changeable message signs or devices shall not be allowed, except as provided herein;

ii. The lighting on an outdoor general advertising device shall not exceed the level of 0.3 footcandles over ambient lighting levels using a footcandle meter at a preset distance based on sign size as follows:

Billboard Dimension	Measurement Distance
11 × 22	150'
10.5' × 36'	200'
14' × 48	250'
20' × 60	350'

If the state or federal government adopts more restrictive lighting standards then the more restrictive regulations shall apply;

iii. Signs or devices may not have message surfaces made entirely or partly of light emitting diodes (LEDs) or similar lighting technology. Any sign or general outdoor advertising device with one or more LED message surfaces, trivision display or projection display that was permitted prior to April 16, 2010, shall be considered a nonconforming general outdoor advertising device and shall be allowed to continue in operation and be maintained in accordance with the provisions herein.

iv. External lighting, such as floodlights, thin line and gooseneck reflectors are permitted, provided the light source is directed upon the face of the sign or device and is effectively shielded so as to prevent beams or rays of light from being directed into any portion of the main traveled way of the interstate or federal-aid primary highway and the lights are not of such intensity so as to cause glare, impair the vision of the driver of a motor vehicle, or otherwise interfere with a driver's operation of a motor vehicle; provided the light source is effectively shielded so as to prevent beams or rays of light from shining onto any lot which is used or zoned residential.

v. No sign or device shall be so illuminated that it interferes with the effectiveness of, or obscures, an official traffic sign, device, or signal.

vi. No sign or device shall emit scent, odor, amplified sound, noise, radio frequencies or visible matter with the exception of light.

vii. No sign or device shall use interactive technology that allows electronic communications with the viewers of the sign except for communication necessary for repairs.

viii. The duration of each message on changeable message devices shall be no less than eight (8) seconds. If the state or federal government adopts more restrictive duration standards then the more restrictive regulations shall apply.

c. Size of Signs/Devices.

i. The maximum area per face for any one sign shall be one thousand two hundred square feet, inclusive of border and trim but excluding the base of apron, supports, and other structural members;

ii. The maximum size limitations shall apply to each side of a sign structure, and signs may be placed back to back, or in V-type construction with not more than one display to each facing;

iii. The maximum height of any sign shall be no more than thirty-five feet from the highest point on the device to the grade of the highway from which the sign is intended to be read.

d. Spacing and Location of Signs.

i. No sign structure shall be erected within five hundred feet of an existing sign on the same side of the highway;

ii. No sign structure shall be erected within three hundred feet of any lot which is used or zoned residential, nor shall any sign structure be located:

a. Within fifty feet of any property line of the lot on which the sign structure is located;

b. Within thirty feet from the nearest building;

c. Within one hundred feet of any on-premise sign;

d. In or within 300 feet of any park, playground, school, library, hospital, church, historic district, landmark, an area on the National Register of Historic Places or the Jefferson Memorial District;

e. The spacing between structure provisions of Subsection 10.d.i of this section do not apply to signs which are separated by buildings, natural surroundings, or other obstructions in such manner that only one sign facing located within such distance is visible at any one time. Directional or other official signs or those advertising the sale or lease of the property on which they are located, or those which advertise activities on the property on which they are located, including products sold, shall not be counted, nor shall measurements be made from them for the purpose of compliance with spacing provisions;

f. No sign shall be located in such manner as to obstruct or otherwise physically interfere with effectiveness of an official traffic sign, signal, or device or obstruct or physically interfere with a motor vehicle operator's view of approaching, merging or intersecting traffic;

g. The measurements in this section shall be the minimum distances between outdoor advertising sign structures measured along the nearest edge of the pavement between points directly opposite the signs along each side of the highway and shall apply only to outdoor advertising sign structures located on the same side of the highway involved;

h. No sign shall be located adjacent to or within five hundred feet of an interchange, intersection at grade, or safety rest area. Such distances shall be measured from beginning or ending of the pavement widening at the exit from or entrance to the main traveled way;

i. No sign shall be located on the roof of a building or non-sign structure.

11. Signs located within the redevelopment project area established pursuant to Ordinance No. 65668, approved October 18, 2002. (1994 C., § 26.68.130; Ord. No. 69198, § 4, 7-18-2012.)

26.68.135 Prohibited use of signs.

It shall be unlawful to allow any sign to fall into non-use by failing to display a message or public information message for a period of sixty (60) days or more. If any such sign shall fall into such non-use its removal and dismantling shall be ordered by the Building Commissioner of the City whether or not said sign is a nonconforming sign. Failure to obey the Building Commissioner's said order by removal of said sign or by renewing the use of said sign by placement of a new advertising message or public information message within seven (7) days of receipt of said order shall be unlawful and shall subject the owner of said sign to a fine of not less than twenty-five dollars ($25.00) and not more than five hundred dollars ($500.00) for each week subsequent to such order which passes without compliance with said order. (1994 C., § 26.68.135; Ord. No. 69198, § 4, 7-18-2012.)

26.68.140 Signs for and by nonconforming use in all zone districts.

A. *General.* Signs may be erected, altered and maintained for and by a nonconforming use in any zone district under the following restrictions:

1. *Nonconforming Uses in Zone Districts A and B.* Signs may be erected, altered and maintained for and by a nonconforming use in zone districts A and B subject to all of the restrictions concerning signs for and by conforming uses in zone districts A, B, C, D and E as set out herein above in Section 26.68.080.

2. *Nonconforming Uses in Zone Districts C, D and E.* Signs may be erected, altered and maintained for and by a nonconforming use in zone districts C, D and E subject to all of the restrictions concerning signs for and by conforming uses in zone districts C, D and E as set out herein above in Section 26.68.080.

3. *Nonconforming Uses in Zone District F.* Signs may be erected, altered and maintained for and by a nonconforming use in zone district F subject to all of the restrictions concerning signs for and by conforming uses in zone district F as set out herein above in Section 26.68.090.

4. *Nonconforming Uses in Zone Districts G and H.* Signs may be erected, altered and maintained for and by a nonconforming use in zone districts G and H subject to all of the restrictions concerning signs for and by conforming uses in zone districts G and H as set out herein above in Section 26.68.100.

5. *Nonconforming Uses in Zone Districts I, J, K and L.* Signs may be erected, altered and maintained for and by a nonconforming use in zone districts I, J, K and L subject to all of the restrictions concerning signs for and by conforming uses in zone districts I, J, K and L as set out herein above in Sections 26.68.110 and 26.68.120. (1994 C., § 26.68.140; Ord. No. 69198, § 4, 7-18-2012.)

26.68.150 Nonconforming signs.

A. *Declaration of Public Policy.* A nonconforming sign may be maintained and repaired. If reconstructed (not meaning to restyle or reword), the sign must conform to the regulations in the district in which it is located.

B. *Definition of Nonconforming Signs.* A nonconforming sign shall be any sign which:

1. On the effective date of the ordinance codified in this chapter was lawfully maintained and had been lawfully erected in accordance with the provisions of any prior zoning ordinance but which sign does not conform to the limitations established by this chapter in the district in which the sign is located; or

2. On or after the effective date of the ordinance codified in this chapter was lawfully maintained and erected in accordance with the provisions of this chapter but which sign, by reason of amendment to this chapter after the effective date thereof does not conform to the limitations established by the amendment to this chapter in which the sign is located.

3. Continuance of Nonconforming Signs. Subject to the termination hereinafter provided, any nonconforming sign may be continued in operation and maintained after the effective date of the ordinance codified in this chapter; provided, however, that no such sign shall be changed in any manner that increases the noncompliance of such sign with the provisions of this chapter established for signs in the district in which the sign is located; and, provided, further that the burden of establishing a sign to be nonconforming under this section rests entirely upon the person or persons, firm or corporation claiming a nonconforming status for a sign.

4. Termination of Nonconforming Signs.

a. *By Abandonment.* Abandonment of a nonconforming sign shall terminate immediately the right to maintain such sign.

b. *By Violation of the Title.* Any violation of this title shall terminate immediately the right to maintain a nonconforming sign.

c. *By Destruction, Damage or Obsolescence.* The right to maintain any nonconforming sign shall terminate and shall cease to exist whenever the sign is damaged over sixty percent (60%) of its value or destroyed, from any cause whatsoever, or becomes obsolete or substandard under any applicable ordinance of the municipality to the extent that the sign becomes a hazard or a danger. (1994 C., § 26.68.150; Ord. No. 69198, § 4, 7-18-2012.)

26.68.160 Signs in Chapter 353 Development Plans, in signage overlay plan districts and signs with special provisions.

A. *Chapter 353 Development Plans.* Any urban redevelopment corporation ("developer") formed, existing and in good standing under RSMo Ch. 353 that has obtained approval by ordinance adopted by the Board of Aldermen for the City for a development plan ("Development Plan") in accordance with Chapter 11.06

of the Revised Code of the City of St. Louis may, with respect to the area described in the Development Plan ("Development Area") promulgate uniform sign standards for the development area with respect to the placement, location, size, type and appearance of signs erected or caused to be erected and placed by or on behalf of the developer in connection with its redevelopment activities in the development area including access within the public right-of-way. Such uniform sign standards and any amendments thereto shall be immediately effective upon the approval of such standards by resolution of the Board of Aldermen and shall terminate upon expiration of the agreement approved and authorized by the ordinance approving the Development Plan, as amended or modified; provided, however, that prior to the adoption of any such resolution by the Board of Aldermen, any such standards shall have been reviewed and favorably recommended by the Planning Commission which may delegate said review to the Director of the Planning and Urban Design Agency; and provided further that no authority is given to any developer to regulate or restrict the placement, location, size, type or appearance of signs indicating that any real estate is "for sale" or "for lease"; and provided further that no authority is given to any developer to regulate, restrict placement, location, size, type or appearance of signs as set forth and provided in Section 26.68.130.

B. *Signage Plan Overlay Districts.*

1. A Signage Plan Overlay District may be created by ordinance to promulgate uniform sign standards for a designated district allowing for flexibility in the size, height, type, placement and number of allowed signs. A Signage Plan District provides a means for defining common sign regulations for unique areas of the City, to encourage a creative incentive and latitude in the design and display of signs for the Signage Plan Overlay District.

2. An applicant may apply for the establishment of a Signage Plan Overlay District for any property or project area zoned "F" Neighborhood Commercial District or higher with a minimum of two (2) acres of area and in accordance with other regulations to be established by the Planning Commission.

3. A Signage Plan Overlay District may be approved by ordinance by the Board of Aldermen of the City of St. Louis after a recommendation from the Planning Commission.

4. Notwithstanding the foregoing, any redevelopment project area established pursuant to Ordinance No. 65668, approved October 18, 2002, shall hereby be deemed to be a Signage Plan Overlay District, provided that the developer(s) designated for such redevelopment project area promulgate(s) uniform sign standards with respect to the placement, location, size, height, type and number of signs within such redevelopment area. Such uniform sign standards and any amendments thereto shall be immediately effective upon approval by resolution of the Board of Aldermen.

C. *Kiel Center Arena - Special Provisions.* Notwithstanding the provision of Ordinance 60704, approved March 11, 1988, Ordinance 60364, approved June 18, 1987, Ordinance 62121, approved December 17, 1990, the Zoning Code of the City of St. Louis, a building sign including off-premise outdoor advertising may be erected, maintained and operated on the new Kiel Center Arena located in City Blocks 209 and 210 south subject to the following conditions:

1. Said device shall display no more than five logo signs; and

2. Said device may contain any information or advertising and an electronic message board; and

3. Said device may be either a wall or window type; and

4. Said device may be installed no less than two hundred feet from any other off-premise outdoor general advertising device on the same side of the highway existing at the time of the erection; and

5. Said device may not exceed (a) two hundred feet in length, (b) ten feet in height, and (c) sixty-five feet above grade on Clark Avenue as measured to the bottom of the device.

Except as herein provided, the device shall be subject to all other provisions of the ordinances of the City of St. Louis. (1994 C., § 26.68.160; Ord. No. 69198, § 4, 7-18-2012.)

26.68.170 Prohibited signs.

Any sign not specifically permitted by this title shall be deemed prohibited. These prohibited signs include, but are not limited to the following:

A. Signs which emit any odor, noise, amplified sound, radio frequencies or visible matter, other than light. (1994 C., § 26.68.170; Ord. No. 69198, § 4, 7-18-2012.)

26.68.175 Board-up signage prohibited.

A. The application, by stencil or other similar means, of any words, letters, numbers, or graphic advertising designs on the plywood or other material used to secure openings in vacant or occupied buildings is prohibited.

B. The City of St. Louis and the Land Reutilization Authority shall be exempt from the provisions of this section.

C. Penalty for Violation. Any person violating the provisions of this chapter shall, upon conviction, be punished by a fine of not more than five hundred dollars, or by imprisonment of not more than ninety days, or by both fine and imprisonment. (1994 C., § 26.68.175; Ord. No. 69198, § 4, 7-18-2012.)

26.68.180 Removal of signs within or on public right-of-way or easement.

A. No person, partnership, corporation or organization shall place, erect, attach or set up a prohibited sign, as defined in Chapter 26.68 of the Revised Code, within or on a public right-of-way or a public easement.

B. The Refuse Commissioner is hereby authorized to remove and dispose of any signs which are placed within or on a public right-of-way or a public easement and which are specifically prohibited by Chapter 26.68 of the Revised Code.

C. Penalty for Violation. Any person violating the provisions of this chapter shall be subject to a fine of not more than five hundred dollars or by imprisonment of not more than ninety days, or by both fine and imprisonment. (1994 C., § 26.68.180; Ord. No. 69198, § 4, 7-18-2012.)

26.68.190 Substitution clause.

Any device, display, or sign allowed under this chapter may contain in lieu of any other copy, any otherwise lawful noncommercial message including any political message, that does not direct attention to a business operated for profit or to a commodity or service for sale, and that complies with all other requirements of this chapter. (1994 C., § 26.68.190; Ord. No. 69198, § 4, 7-18-2012.)

Chapter 26.70

MARIJUANA USES

Editor's Note:

Ord. No. 71608, approved January 23, 2023, and passed by the voters at an election of April 4, 2023, imposed an additional sales tax for three (3) percent on the retail sales of adult use non-medical marijuana med in the City of St. Louis, as authorized by Amendment Three of the Missouri Constitution.

Sections:

26.70.010	**Purpose.**
26.70.020	**Definitions.**
26.70.030	**Use Regulations for Marijuana Facilities**
26.70.040	**Site Requirements for Marijuana Facilities**

26.70.010 Purpose.

The purpose and intent of this Chapter is to regulate the location, establishment and operation of all medical marijuana facilities, marijuana facilities, and marijuana related uses in order to ensure the health, safety and general welfare of the residents of the City of St. Louis. These are unique and related land uses with ramifications not addressed by more traditional zoning district regulations. Additional regulations in this section are intended to provide reasonable restrictions within districts so that these uses do not compromise the health, safety and general welfare of persons in the district, or other uses allowed in each district. The regulations in this chapter do not address a patient's, or a consumer's, right to use marijuana as authorized under State Law; nor do they criminalize the possession or cultivation of marijuana by specifically defined classifications of persons, as authorized under State Law; nor do they regulate or govern residential cultivation, as authorized by State Law, for a consumer or for a qualifying patient who uses medical marijuana for medicinal purposes. Nothing in this Chapter purports to permit activities that are otherwise illegal under state or local law. Under state law, only qualifying patients, primary caregivers, and persons at least twenty-one (21) years of age, with state-issued identification cards may possess or cultivate marijuana unless the marijuana is cultivated or possessed by a state-licensed marijuana facility as defined below. all facilities defined herein shall comply with all local and state laws.
(Ord. No. 71633, § 1, 2-16-2023; Ord. No. 70982, § 2, 6-25-2019.)

26.70.020 Definitions.

A. *Comprehensive Facility.* "Comprehensive Facility" means a Comprehensive Marijuana Cultivation Facility, Comprehensive Marijuana Dispensary Facility, or a Comprehensive Marijuana-Infused Products Manufacturing Facility.

B. *Comprehensive Marijuana Cultivation Facility.* "Comprehensive Marijuana Cultivation Facility" means a facility licensed by the department to acquire, cultivate, process, package, store on site or off site, transport to or from, and sell marijuana, marijuana seeds, marijuana vegetative cuttings (also known as clones) to a medical facility, comprehensive facility or marijuana testing facility. A Comprehensive Marijuana Cultivation Facility need not segregate or account for its marijuana products as either non-medical marijuana or medical marijuana. A Comprehensive Marijuana Cultivation Facility's authority to process marijuana shall include the creation of Prerolls, but shall not include the manufacture of Marijuana-infused Products.

C. *Comprehensive Marijuana Dispensary Facility.* "Comprehensive Marijuana Dispensary Facility" means a facility licensed by the Missouri Department of Health and Senior Services to acquire, process, package, store on site or off site, sell, transport to or form, and deliver marijuana, marijuana seeds, marijuana vegetative cuttings (known as clones), marijuana-infused products and drug paraphernalia used to administer marijuana as provided for in this section to a qualifying patient or primary caregiver, as those terms are defined in Section 1 of Article XIV of the Missouri Constitution, or to a Consumer, anywhere on the licensed property or to any address as directed by the patient, primary caregiver, or Consumer, and consistent with the limitations of the Missouri Constitution and otherwise allowed by law, to a Comprehensive facility, a Marijuana Testing Facility, or a medical facility. Comprehensive Dispensary Facilities may receive transaction orders at the dispensary directly from the Consumer in person, by phone or via the internet, including from a third party. A Comprehensive Marijuana Dispensary Facility need not segregate or account for its marijuana products as either non-medical marijuana or medical marijuana, but shall collect all appropriate tangible personal property sales tax for each sale, as set forth in Article XIV of the Missouri Constitution and provided for by general or local law. A Comprehensive Marijuana Dispensary Facility's authority to process marijuana shall include the creation of Prerolls.

D. *Comprehensive Marijuana-Infused Products Manufacturing Facility.* "Comprehensive Marijuana-Infused Products Manufacturing Facility" means a facility licensed by the Department of Health and Senior Services to acquire, process, package, store, manufacture, transport to or from a Medical facility, Comprehensive facility, or Marijuana Testing Facility, and sell Marijuana-Infused Products, Prerolls, and infused products to a Marijuana Dispensary Facility, a Marijuana Testing Facility, or another Marijuana-Infused Products Manufacturing Facility. A Comprehensive Marijuana-Infused Products Manufacturing Facility need not segregate to account for its marijuana products as either non-medical or medical marijuana.

E. *Consumer.* "Consumer" means a person who is at least twenty-one (21) years of age.

F. *Marijuana* or *Marihuana.* "Marijuana" or "Marihuana" means *Cannabis indica, Cannabis sativa,* and *Cannabis ruderalis*, hybrids of such species, and any other strains commonly understood within the scientific community to constitute marijuana, as well as resin extracted from the plant and plant-infused products. "Marijuana" or "Marihuana" do not include industrial hemp containing a crop-wide average tetrahydrocannabinol concentration that does not exceed three-tenths of one (0.3) percent on a dry weight basis, or commodities or products manufactured from industrial hemp.

G. *Marijuana Accessories.* "Marijuana Accessories" means any equipment, product, material, or combination of equipment, products, or materials, which is specifically designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, ingesting, inhaling, or otherwise introducing marijuana into the human body.

H. *Marijuana Facility.* "Marijuana Facility" means a Comprehensive Marijuana Cultivation Facility, Comprehensive Marijuana Dispensary Facility, Marijuana Testing Facility, Comprehensive Marijuana-Infused Products Manufacturing Facility, Microbusiness Wholesale Facility, Microbusiness Dispensary Facility, or any other type of marijuana-related facility or business licensed or certified by the Missouri Department of Health and Senior Services pursuant to the Missouri Constitution, but shall not include a medical facility licensed under Section 1 of Article XIV of the Missouri Constitution.

I. *Marijuana-Infused Products.* "Marijuana-Infused Products" means products that are infused, dipped, coated sprayed or mixed with marijuana or an extract thereof, including but not limited to, products that are

able to be vaporized or smoked, edible products, ingestible products, topical products, suppositories and infused Prerolls.

J. *Marijuana Microbusiness Facility.* "Marijuana Microbusiness Facility" means a facility licensed by the Department of Health and Senior Services as a Microbusiness Dispensary Facility or Microbusiness Wholesale Facility, as defined herein.

K. *Medical Marijuana Cultivation Facility.* "Medical Marijuana Cultivation Facility" means a facility licensed by the Missouri Department of Health and Senior Services, to acquire, cultivate, process, store, transport, and sell marijuana to a Medical Marijuana Dispensary Facility, a Medical Marijuana Testing Facility, or a Medical Marijuana-Infused Products Manufacturing Facility.

L. *Medical Marijuana Dispensary Facility.* "Medical Marijuana Dispensary Facility" means a facility licensed by the Missouri Department of Health and Senior Services, to acquire, store, sell, transport, and deliver marijuana, marijuana-infused products and drug paraphernalia used to administer marijuana as provided for in this section to a Qualifying Patient, a Primary caregiver, another medical Marijuana Dispensary Facility, a Medical Marijuana Testing Facility, or a Medical Marijuana-Infused Products Manufacturing Facility.

M. *Medical Marijuana Facility.* "Medical Marijuana Facility" means any facility that is regulated by the State of Missouri to acquire, certify, cultivate, deliver, dispense, manufacture, process, sell, store, test, transport or warehouse medical marijuana including a Medical Marijuana Cultivation Facility, a Medical Marijuana Dispensary Facility, a Medical Marijuana-Infused Product Manufacturing Facility, and a Medical Marijuana Testing Facility.

N. *Medical Marijuana-Infused Products Manufacturing Facility.* "Medical Marijuana-Infused Products Manufacturing Facility" means any facility that is regulated by the State of Missouri to acquire, certify, deliver, dispense, manufacture, process, sell, store, test, transport, or warehouse medical marijuana including a Medical Marijuana-Infused Product Manufacturing Facility and a Medical Marijuana Testing Facility.

O. *Marijuana Testing Facility.* "Marijuana Testing Facility" means a facility that is certified by the Missouri Department of Health and Senior Services to acquire, test, certify and transport marijuana, including those originally certified as a Medical Marijuana Testing Facility.

P. *Medical Marijuana Use.* "Medical Marijuana Use" means the production, possession, delivery, distribution, transportation, or administration of marijuana or a marijuana-infused product, or drug paraphernalia used to administer marijuana or a marijuana-infused product, for the benefit of a Qualifying Patient, as defined under the regulations of the Missouri Department of Health and Senior Services, to mitigate the symptoms or effects of the patient's qualifying medical condition.

Q. *Microbusiness Dispensary Facility.* "Microbusiness Dispensary Facility" means a facility licensed by the Missouri Department of Health and Senior Services to acquire, process, package, store on site or off site, sell, transport to or from and deliver marijuana, marijuana seeds, marijuana vegetative cuttings (also known as clones), marijuana infused products, and drug paraphernalia used to administer marijuana as provided for in this Section to a Consumer, Qualifying Patient, or Primary Caregiver, as defined in Article XIV of the Missouri Constitution and as defined herein, anywhere on the licensed property or to any address as directed by the Consumer, Qualifying Patient, or Primary Caregiver, and consistent with the limitations of Article XIV of the Missouri Constitution and as otherwise allowed by law, a Microbusiness Wholesale Facility, or a Marijuana Testing Facility. Microbusiness Dispensary Facilities may receive transaction orders at the dispensary directly from the Consumer in person, by phone, or via the Internet, including from a third party. A Microbusiness Dispensary Facility's authority to process marijuana shall include the creation of Prerolls.

R. *Microbusiness Wholesale Facility.* "Microbusiness Wholesale Facility" means a facility licensed by the Department of Health and Senior Services to acquire, cultivate, process, package, store on site or off site, manufacture, transport to or from, deliver, and sell marijuana, marijuana seeds, marijuana vegetative cuttings (also known as clones), and marijuana infused products to a Microbusiness Dispensary Facility, other Microbusiness Wholesale Facility, or Marijuana Testing Facility. A Microbusiness Wholesale Facility may cultivate up to 250 flowering marihuana plants at any

given time. A Microbusiness Wholesale Facility's authority to process marijuana shall include the creation of Prerolls and infused Prerolls.

S. *Preroll.* "Preroll" means a consumable or smokable marijuana product, generally consisting of: (1) a wrap or paper and (2) dried flower, buds, and/or plant material. Prerolls may or may not include a filter or crutch at the base of the product.

(Ord. No. 71633, § 1, 2-16-2023; Ord. No. 70982, § 2, 6-25-2019.)

26.70.030 Use Regulations for Marijuana Facilities

The following Use Table lists how Marijuana Facilities are regulated in the various zoning districts. Within the table, the user can identify the type of Marijuana Facility and how the facility is regulated under each zone-thus identifying whether the use is Permitted (P), whether it requires a Conditional Use Permit (C), or whether it is prohibited (NA).

Use	A	B	C	D	E	F	G	H	I	J	K	L
Comprehensive Marijuana Cultivation Facility, Medical Marijuana Cultivation Facility and Microbusiness Wholesale Facility	NA	NA	NA	NA	NA	NA	NA	C	P	P	P	P
Comprehensive Marijuana-Infused Products Manufacturing Facility and Medical Marijuana-Infused Products Manufacturing Facility	NA	NA	NA	NA	NA	NA	NA	C	P	P	P	P
Marijuana Testing Facility	NA	NA	NA	NA	NA	NA	NA	NA	P	P	P	P
Comprehensive Marijuana Dispensary Facility, Medical Marijuana Dispensary Facility, and Microbusiness Dispensary Facility	NA	NA	NA	NA	NA	C	P	P	P	P	P	P
Comprehensive Marijuana Dispensary Facility, Medical Marijuana Dispensary Facility and Microbusiness Dispensary Facility with Curbside Delivery and or a Sales or Service Window and/or Extended Hours	NA	NA	NA	NA	NA	C	C	C	C	C	C	C
Other Marijuana Related Facility (a facility not specifically listed above, but engaging in one or more of the activities of a Medical Marijuana or Marijuana Facility)	NA	NA	NA	NA	NA	C	C	C	C	C	C	C

(Ord. No. 71897, § 2, 10-11-2024; Ord. No. 71633, § 1, 2-16-2023; Ord. No. 70982, § 2, 6-25-2019.)

26.70.040 Site Requirements for Marijuana Facilities

A. All Medical Marijuana and Marijuana Facilities shall comply with the following site requirements:

1. The facility shall comply with all regulations issued by the Missouri Department of Health and Senior Services for Marijuana Facilities. If the State's requirement is more restrictive than the City's requirement, then the more restrictive requirement applies.

2. The facility shall be monitored at all times by an Internet-based closed-circuit television for security purposes. The camera and recording system shall be of adequate quality, color rendition and resolution to allow the ready identification of any individual committing a crime anywhere on or adjacent to the facility. The recordings shall be maintained for a period of not less than ninety (90) days and shall be made available to law enforcement authorities upon request.

3. The facility shall have a fireproof vault or safe that is incorporated into and securely attached to the building structure for the purpose of securely storing cash and any processed marijuana.

4. The facility shall have a centrally monitored fire and burglar alarm system.

5. The exterior building lighting and parking area of the facility, if any, shall be equipped with lighting fixtures of sufficient intensity to illuminate all interior areas of the lot with an illumination of not less than one and one-half (1.5) foot-candles evenly distributed as measured at floor level. These light fixtures shall be turned on from dusk to dawn.

6. The facility shall not use any equipment or process that creates noise, dust, vibrations, glare, fumes, odors or electrical interference detectable to the normal senses beyond the property boundary.

7. No person or facility shall dispose of Marijuana or Marijuana-Infused Products in an unsecured waste receptacle not in possession and control of the licensee and designed to prohibit unauthorized access.

8. The facility, except for a Comprehensive Marijuana Dispensary or a Medical Marijuana Dispensary or a Marijuana Testing Facility, shall have an odor mitigation system that uses activated carbon filters, and ozone generator, UV light exposure, UV-C air disinfection or other similar odor mitigation technology.

9. All facilities, except a Medical Marijuana Dispensary or Comprehensive Marijuana Dispensary, shall have an armed security guard on the premises at all times.

10. The facility shall display its state issued license on the interior of the facility, visible to the public, at all times.

11. The facility shall not allow on-site consumption of marijuana or marijuana-infused products on the premises at any given time.

12. The facility shall not have a sign unless it is a Medical Marijuana Dispensary or a Comprehensive Marijuana Dispensary.

13. At the facility, any and all cultivation, processing, storage, display, sales or other distribution of marijuana shall occur within an enclosed building and shall not be visible from the exterior of the building.

B. Medical marijuana dispensary facilities and comprehensive marijuana dispensary facilities shall comply with the following additional site requirements:

1. The facility shall be located and operated from a permanent and fixed structure and may not be located in a trailer, cargo container or motor vehicle and the structure shall not be mobile or operate from a transitory location.

2. The facility shall be allowed to sell to a qualifying patient, or primary caregiver, or consumer, as defined by Missouri law, devices contrivances, instruments and paraphernalia for inhaling or otherwise consuming marijuana including, but not limited to, rolling papers, and related tools, water pipes, and vaporizers.

3. The facility shall display a sign on the interior of the facility indicating that (1) a patient identification card or primary caregiver identification card, issued from the Missouri Department of Health and Senior Services, is required and must be presented to purchase medical marijuana and medical marijuana infused products and (2) photo identification showing a consumer is at least twenty-one (21) years of age is required and must be presented to purchase marijuana and marijuana-infused products.

4. The facility shall not allow customers who are in cars to consume the sold products in cars parked on the facility.

5. The facility's hours of operation shall be limited to 8:00 a.m. to 10:00 p.m. Sunday through Saturday.

6. The facility shall not erect or use any freestanding signage and shall not have any temporary signage. All signs shall have appropriate permits prior to installation.

7. The facility shall only be allowed wall signs and no signs shall extend above the roof of the building or extend more than fifteen (15) feet in height above grade. The provisions of Chapter 26.68 shall determine the total square footage of all signs attached to the building.

8. The windows and doors of the facility shall not be covered by boards, mesh, grates, materials or coverings of any kind, except proper blinds and curtains.

9. The facility shall not have cord or rope type LED lighting surrounding or framing its windows or doors.

C. No Spacing Requirements. No Medical Marijuana Facility or Marijuana Facility shall be required to be a prescribed distance between an existing elementary or secondary school, a daycare or church.
(Ord. No. 71897, § 3, 10-11-2024; Ord. No. 71633, § 1, 2-16-2023; Ord. No. 70982, § 2, 6-25-2019.)

Chapter 26.72

REGULATED USES

Chapters:

26.72.010 Purpose.
26.72.020 Definitions.
26.72.030 Location regulations.
26.72.040 Waiver provisions.

26.72.010 Purpose.

In the enactment, execution and enforcement of this title, it is recognized that there are some uses which, due to the nature of their operation, are recognized as having serious objectionable operational characteristics, particularly when several of said uses are concentrated in close proximity to each other thereby having a detrimental effect upon the surrounding area. The regulation of these uses is necessary to ensure that the detrimental effects will not contribute to the blighting, downgrading or otherwise diminution of property val-

ues of the surrounding neighborhood. The primary purpose of these regulations is to prevent a concentration of these uses in any one (1) area. Uses subject to these controls are:

A. Adult book store;

B. Adult motion picture theater;

C. Adult peep show;

D. Massage establishment. (1994 C., § 26.72.010; Ord. No. 59979, § 19(part), 1986.)

26.72.020 Definitions.

A. *Adult Book Store.* "Adult book store" means an establishment having as a substantial or significant portion of its stock in trade, books, magazines and other periodicals or motion picture films, video tapes, or sound recordings which are distinguished or characterized by their emphasis on matter depicting, describing or relating to "specified sexual activities or specified anatomical areas," (as defined below) or an establishment with a segment or section devoted to the sale or display of such material.

B. *Adult Motion Picture Theater.* "Adult motion picture theater" means an establishment wherein motion pictures are shown which present material distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas," (as defined below) for observation by patrons therein.

C. *Adult Peep Show.* "Adult peep show" means an enclosed building used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas," (as defined below), for observation by patrons therein by means of coin operated or manual operated viewing devices.

D. *Massage Establishment.* "Massage establishment" means an establishment or operation within the meaning of Chapter 8.24 of the Revised Code of the City of St. Louis.

E. *Specified Sexual Activities and Specified Anatomical Areas.*

1. For the purpose of this section, "specified sexual activities" is defined as:

a. Human genitals in a state of sexual stimulation or arousal;

b. Acts of human masturbation, sexual intercourse or sodomy; bondage, sadomasochism, or bestiality;

c. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

2. And "specified anatomical areas" is defined as:

a. Less than completely and opaquely covered:

i. Human genitals, pubic region;

ii. Buttock; and

iii. Female breast below a point immediately above the top of the areola; and

b. Human male genitals in a discernibly turgid state, even if completely and opaquely covered. (1994 C., § 26.72.020; Ord. No. 59979, § 19(part), 1986.)

26.72.030 Location regulations.

Except as otherwise provided under the waiver provisions of this chapter, no building or land shall hereafter be used for any of the uses set out in Section 26.72.020 if:

A. The boundaries of the site of the proposed location is within five hundred (500) feet of a residentially zoned district; or

B. The boundaries of the site of the proposed location is within five hundred (500) feet of a church or elementary, intermediate or high school, or college, junior college or university; or

C. There is already in existence, two (2) or more regulated uses within one thousand (1,000) feet of the boundaries of the site of the proposed regulated use. (1994 C., § 26.72.030; Ord. No. 59979, § 19(part), 1986.)

Cases:

> Ordinance regulating the location of certain adult businesses was held valid against the contention that the Board of Aldermen failed to consider any relevant evidence or review any empirical data regarding the alleged concerns the ordinance was intended to redress before passing the ordinance. *Thames Enterprises, Inc. v. City of St. Louis,* 851 F. 2d 199 (8th Cir. 1988).

26.72.040 Waiver provisions.

Applications to establish any of the above regulated uses shall be forwarded immediately by the Building Commissioner to the Community Development Commission.

A. The prohibition against locating any of the above regulated uses within five hundred (500) feet of a residentially zoned district shall be waived upon the presentment, to the Community Development Commission, of a validated petition requesting such waiver, signed by fifty-one percent (51%) of those persons owning, residing, or operating a business establishment within five hundred (500) feet of the nearest property line of the proposed location. Said petition shall be on

forms provided by the Community Development Commission and secured in accordance with rules and regulations governing the procedure for securing the petition of consent, adopted by the Commission. The circulator of the petition requesting a waiver shall subscribe to an affidavit attesting to the fact that the petition was circulated in accordance with the Commission's rules and that the circulator personally witnessed the signatures on the petition and that the same were affixed to the petition by the person whose name appears thereon. The Commission shall not consider the waiver of locational requirements set forth in Subsection B of this section until the above-described petition, if required, shall have been filed and verified.

B. The Community Development Commission may waive the one thousand (1,000) feet separation regulation if the following findings are made:

1. That the proposed use will not be contrary to the public interest or injurious to nearby properties, and that the spirit and intent of this title will be observed.

2. That the proposed use will not enlarge or encourage the development of a "skid row" area.

3. That the establishment of an additional regulated use in the area will not be contrary to any program of neighborhood conservation nor will it interfere with any program of urban renewal.

4. That all applicable regulations of the title will be observed.

C. Prior to granting such regulated use, the Community Development Commission shall give due Notice of Receipt of any application under consideration (Notice of Application) to all persons to whom any real property within five hundred (500) feet of the premises in question shall be assessed, and to the occupants of all single; two (2); three (3); and four (4) family buildings and to the managers of all multi-unit buildings over four (4) families (who shall be requested to post such notice in an appropriate location within the multi-unit building) and to all places within five hundred (500) feet, and to any neighborhood improvement organizations known to exist in the area (who have informed the Community Development Commission in writing of their existence). Such notice shall be delivered personally or by mail addressed to the respective owners and if the tenant's name is not known, the term "Occupant" may be used.

D. The notice of application shall inform the recipient of the applicant's name, the applicant's proposal, the local address and the lot number and subdivision name of the premises in question, and the section of the zoning ordinance under which the proposal is being processed. Such notice shall also invite the expression of comments, statements or opinions either in writing, in person or via telephone with a time period expiring not less than fourteen (14) calendar days from the mailing date of such notice.

E. Subsequent to the deadline for response to the notice of application, a decision shall be made by the Community Development Commission (taking into consideration the comments, statements and opinions expressed) to either approve, approve with conditions or deny the proposal in accordance with the standards set forth in this section. If no protests to the proposal were received by the Community Development Commission in response to the notice of application having been mailed and if the applicant accepts the decision of the Community Development Commission this decision shall be deemed final and shall take immediate effect. If, however, a protest was received by the Community Development Commission in response to the notice of application having been mailed, this decision shall not take effect until the expiration of the appeal period set forth below, or in the event said decision is appealed, until it is ruled on by the Board of Adjustment.

F. A copy of the decision of the Community Development Commission shall be mailed to the applicant and to all persons responding to the notice of application. Any person aggrieved by the decision by the Community Development Commission may, within fourteen (14) calendar days after the mailing of said decision, appeal same to the Board of Adjustment in accordance with the procedural regulations set forth in Chapter 26.84. If an appeal is filed by other than the applicant the Community Development Commission shall inform the applicant that an appeal has been filed and that the Commission's decision will not take effect pending a public hearing and decision by the Board of Adjustment.

G. The Board may waive the locational requirements, upon appeal, of any of the regulated uses if the findings required in Section 26.72.040.B can be made and after receiving a report and recommendation from the Community Development Commission.

H. In approving a permit for any regulated use, the Community Development Commission or the Board may impose any such conditions or limitations upon the establishment, location, construction, maintenance,

or operation of the regulated use as may in its judgment be necessary for the protection of the public interest. Any evidence and guarantee may be required as proof that the conditions stipulated in connection therewith will be fulfilled.

I. When the decision of the Community Development Commission becomes effective, either because no protests to the proposal were received by the Commission in response to the notice of application or because no appeal was taken to the Board of Adjustment within the allotted fourteen (14) calendar days, the Commission shall immediately notify the Building Commissioner in writing indicating the Commission's approval, approval with conditions (in which case the conditions shall be set out in detail) or denial. If the decision of the Commission approves or approves with conditions, the requested waiver, the Building Commissioner shall, if all other applicable Building Code and Zoning Code regulations have been complied with, issue an occupancy permit subject to any conditions unposed by the Community Development Commission. (1994 C., § 26.72.040; Ord. No. 59979, § 19(part), 1986.)

Chapter 26.73

SPECIAL USE DISTRICTS

Chapters:

26.73.010 **Prohibit new or expanded use within SUD boundaries.**

26.73.020 **Allowance of new or expanded use within SUD boundaries as conditional use.**

26.73.030 **Types of items that may be included in specific SUD ordinance.**

26.73.010 Prohibit new or expanded use within SUD boundaries.

A. The purpose for creation of an SUD as an overlay zoning district for a specific zoning districts area should be to assist in the implementation of the plan, commercial district redevelopment plan(s) and/or an adopted neighborhood plan for a specific geographic area of at least two (2) contiguous acres per a metes and bound legal description.

B. The purpose for creation of an SUD as an overlay zoning district for a specific zoning districts area should also respond to well-defined health, safety, moral and/or general welfare problems. A specific SUD ordinance shall state the problems addressed by any use being prohibited or limited within the SUD area.

C. A specific SUD ordinance may reduce the time period for discontinuing nonconforming uses within the specific SUD area from the existing one (1) year to a shorter time period not less than thirty (30) days.

D. A specific SUD ordinance may prohibit the creation of uses or the expansion of existing uses that are permitted or conditional uses under existing commercial zoning districts ("F" Neighborhood Commercial District, "G" Local Commercial and Office District and "H" Area Commercial District) and related business oriented zoning districts ("J" Industrial District and "K" Unrestricted District).

E. The residential dwelling districts ("A" Single-Family, "B" Two-Family, "C" Multiple-Family, "D" Multiple-Family, and "E" Multiple-Family) may be included in a specific SUD ordinance only if the residential dwelling district has an existing problem land use addressed in the specific SUD ordinance. (1994 C., § 26.73.010; Ord. No. 66941, § 1, 2005.)

26.73.020 Allowance of new or expanded use within SUD boundaries as conditional use.

A. A specific SUD may promote flexibility and fairness under a new SUD ordinance by making it possible to allow new or expanded uses within the SUD subject to the conditional use provisions of Section 26.80.010 of the Zoning Ordinance of the City of St. Louis. In an SUD area a specific SUD ordinance may require that a use that is presently zoned as a permitted use, a conditional use or a prohibited use be subject to the conditional use process in Section 26.80.010.

B. A specific SUD ordinance may further regulate a permitted use with additional restrictions because it has been or may in the future be expected to be the cause of the emergence of well defined problems, and thus require that use become a conditional use subject to the provisions of Section 26.80.010.

C. A specific SUD ordinance may allow an existing conditional use to remain as a conditional use, but may subject that use to a specific list of limitations and subject that use to the provisions of Section 26.80.010, to address the well-defined problems with that type of use which the City has documented.

D. Given the goal of promoting flexibility and fairness in commercial districts, a specific SUD ordinance may make it possible to treat a prohibited use less restrictively than previously because through the conditional use process contained in Section 26.80.010 a

specific SUD ordinance may substantially reduce, avoid or mitigate potential damage to adjacent property. (1994 C., § 26.73.020; Ord. No. 66941, § 2, 2005.)

26.73.030 Types of items that may be included in specific SUD ordinance.

A. A specific SUD may deal with a range of criteria including: 1) maximum size or height of building; 2) number of parking spaces for employees, customers and/or visitors; 3) signage; 4) carryout windows; 5) landscaping buffers and fences; 6) percentage of lot landscaping; 7) refuse enclosures and dumpsters; 8) vehicular and pedestrian access; 9) outdoor lighting; 10) hours of operation; 11) prior record of business owner, operator and employees involving identified problem land uses; 12) time limits for accomplishment of the conditions; and/or 13) specific criteria that address unique aspects of the identified problem land uses and the identified geographic area in a specific SUD ordinance.

B. Conditional use review procedures used in a specific SUD ordinance will include a forty-five (45) day review period by the staff of the Zoning Administrator and a fifteen (15) day public notice period before the required conditional use hearing. If a conditional use permit is issued, it shall be valid for one (1) year after issuance, but can be declared null and void by the Zoning Administrator if the work to be done to establish the conditional use is not completed and an occupancy permit from the City is not issued within one (1) year after the written approval of the conditional use.

C. Under the conditional use standards of Section 26.80.010 of the Zoning Ordinance of the City of St. Louis the approval of the proposed use: 1) cannot be detrimental to the public; 2) cannot cause injury to neighbor's property or reduce value; 3) should enhance the general welfare; 4) should be a compliment or compatible use; and 5) the Zoning Administrator, Board of Public Service and the Board of Adjustment may add and require additional conditions and restrictions from time to time.

D. In developing conditions for the uses under a specific SUD ordinance or the conditions to be imposed on a specific use, the following criteria shall also be considered regarding the approval and/or conditions for the operation of the proposed use: 1) existing and proposed site topography; 2) existing and proposed land use on the SUD site and/or up to one thousand (1,000) feet from the SUD site; 3) density of commercial activity on and near the proposed site; 4) location of the site relative to major thoroughfares or public transit routes; 5) availability of public parks, playgrounds, open space and schools near the proposed site; 6) the impact of the proposed use on existing buildings, structures or other facilities with architectural, historical or cultural significance on the SUD site and/or up to one thousand (1,000) feet from the SUD site; as well as 7) existing landscaping including trees over six (6) inch caliper, formal garden(s), fountains, statues and/or sculptures on the SUD site. (1994 C., § 26.73.030; Ord. No. 66941, § 3, 2005.)

Chapter 26.74

OFF-STREET PARKING AND LOADING IN DWELLING DISTRICTS

Chapters:

26.74.030 Entrances and exits.
26.74.040 Maintenance requirements.
26.74.050 Penalty for violation.

26.74.030 Entrances and exits.

All parking areas, loading areas, and driveways must have adequate entrances and exits approved by the Building Commissioner with the consent of the Director of Streets. (1994 C., § 26.74.030; Ord. No. 61857, § 3, 1990.)

26.74.040 Maintenance requirements.

All parking areas, loading areas, and driveways must be maintained in good repair. (1994 C., § 26.74.040; Ord. No. 61857, § 4, 1990.)

26.74.050 Penalty for violation.

Any person, firm or corporation that violates any provision of this chapter shall upon conviction be fined not less than one dollar ($1.00) or more than five hundred dollars ($500.00) or by imprisonment up to ninety (90) days or by both such fine and imprisonment. (1994 C., § 26.74.050; Ord. No. 61857, § 5, 1990.)

Editor's Note:

Ordinance 61857 was passed March 23, 1990.

Chapter 26.75

SPECIAL RESIDENTIAL USES

Sections:

26.75.010 Purpose.
26.75.020 Definitions.

26.75.030 Use regulations for special residential uses.
26.75.040 Site requirements for special residential uses.
26.75.050. Requirement of operations plan.
26.75.055 Operation without compliance prohibited.

26.75.010 Purpose.

The purpose and intent of this chapter are to regulate the location, establishment, and operation of all special residential uses to ensure the health, safety, and general welfare of the residents of the City of St. Louis. These are unique land uses that provide housing opportunities to individuals and families not adequately served by other housing types and with potential ramifications not otherwise addressed by more traditional zoning district regulations. Additional regulations in this section are intended to provide reasonable restrictions within districts so that these uses do not compromise the health, safety, and general welfare of persons in the district, or other uses allowed in each district.
(Ord. No. 71928, § 4, 11-19-2024.)

26.75.020 Definitions.

A. *Boarding house.* "Boarding house" means a rooming house where, for compensation, meals are provided.

B. *Building Official.* "Building Official" means the Building Commissioner or any designee from the Building Division.

C. *Dormitory.* "Dormitory" means a building or part of a building that is operated by, or on behalf of, institution(s) that provides educational instructions and houses students enrolled at such institution(s), with either shared or private bathroom space.

D. *Group home.* "Group home" means a residential facility serving nine (9) or fewer residents, similar in appearance to a single-family dwelling and providing basic health supervision, habilitation training in skills of daily and independent living and community integration, and social support. Group homes do not include a family living arrangement or individualized supported living. A group home will provide a separate bedroom for each tenant, and either shared or private bathroom space.

E. *Halfway house.* "Halfway house" means a facility that provides housing for individuals, to assist with the transition from incarceration to the community, with ongoing staff monitoring. A halfway house may include individual bedrooms and either shared or private bathroom space.

F. *Rooming house.* "Rooming house" means a dwelling, other than a hotel or bed and breakfast establishment, where, for compensation, lodging only is provided, with either shared or private bathroom space.

G. *Shelter, congregate.* "Shelter, congregate" means a facility that provides congregate housing for individuals temporarily displaced or experiencing homelessness, where no compensation is collected. This facility has one (1) or more open sleeping areas, furnished with beds, cots, floor mats, or bunks, and either shared or private bathroom space. Individual bedrooms are not required. This facility may or may not offer support services such as counseling, vocational training, and pathways to permanent housing, for its clients.

H. *Shelter, single-room occupancy.* "Shelter, single-room occupancy" means a facility that provides single-unit lodging for individuals temporarily displaced or experiencing homelessness, where no compensation is collected. Individuals reside in a single room with sleeping accommodations and either shared or private bathroom space. This facility may or may not offer support services such as counseling, vocational training, or pathways to permanent housing, for its clients.

I. *Special residential use.* "Special residential use" means a unique residential use that provides housing opportunities to individuals and families not adequately served by other housing types and with potential ramifications not otherwise addressed by other city zoning regulations, including congregate shelters, single-room occupancy shelters, dormitories, rooming houses, boarding houses, transitional housing, halfway houses, substance use treatment facility, and group homes.

J. *Substance use treatment facility.* "Substance use treatment facility" shall mean a residential or in-patient facility (other than a hospital or clinic regulated under Title 12 of the Revised Code of the City of St. Louis) whose primary function is the treatment of substance use and which is regulated by the appropriate state and local authority to provide such service. It does not include halfway houses, boarding houses, or other facilities that provide primarily a supportive environment, even if substance use counseling is provided in such facilities.

K. *Support services.* "Support services" means any services provided by the shelter provider that assist in

the pathway toward permanent and stable housing, such as counseling, vocational training, housing assistance, or other similar services.

L. *Transitional housing.* "Transitional housing" means a facility that provides housing with support services to individuals and families experiencing homelessness, with the goal for them to eventually move into and maintain permanent housing. A transitional housing facility may include individual bedrooms and either shared or private bathroom space.

M. *Zoning Office.* "Zoning Office" means the City of St. Louis Zoning Section, or any other successive city department that is responsible for administering and enforcing the City of St. Louis Zoning Code Ordinance.

(Ord. No. 71928, § 4, 11-19-2024.)

26.75.030 Use regulations for special residential uses.

The following use table lists how all special residential uses are regulated in the various zoning districts. Within the table, the user can identify the type of special residential use and how that use is regulated under each zone − thus identifying whether the use is permitted (P), whether it requires a conditional use permit (C), or whether it is prohibited (NA):

Special Residential Uses	A	B	C	D	E	F	G	H	I	J	K	L
Boarding house	C	C	C	C	C	C	C	C	C	C	C	C
Dormitory	C	C	C	C	C	C	C	C	C	C	C	C
Group home	C	C	C	C	C	C	C	C	C	C	C	C
Halfway house	C	C	C	C	C	C	C	C	C	C	C	C
Rooming house	C	C	C	C	C	C	C	C	C	C	C	C
Shelter, congregate	NA	NA	C	C	C	C	C	C	C	C	C	C
Shelter, single-room occupancy	C	C	C	C	C	C	C	C	C	C	C	C
Substance use treatment facility	C	C	C	C	C	C	C	C	C	C	C	C
Transitional housing	C	C	C	C	C	C	C	C	C	C	C	C
Other related special residential uses (a facility not specifically listed above, but engaging in the activities of a special residential use)	C	C	C	C	C	C	C	C	C	C	C	C

(Ord. No. 71928, § 4, 11-19-2024.)

26.75.040 Site requirements for special residential uses.

A. All special residential uses shall comply with the following site requirements:

1. The facility shall have access to a dumpster and maintain the entire premises in a clean and orderly appearance at all times.

2. The facility shall provide a refuse container on the exterior of the premises for use by the clients and it shall be emptied daily or more if needed.

3. There shall be no selling of liquor, alcohol, or non-intoxicating beer on the premises at any given time.

4. There shall be no vending, ATM machines, or payphones on the exterior of the premises at any given time.

5. All windows and doors must have no boards, mesh, grates, materials, or coverings of any kind. Windows and doors may have proper blinds or curtains on the inside of the windows.

6. The facility shall not have cord or rope-type LED lighting surrounding or framing its windows or doors.

7. The premises shall not be issued a public nuisance notice, pursuant to Ordinance 68535 or its successor ordinances.

8. The facility shall abide by the City of St. Louis Noise Ordinance 68130 or its successor ordinances.

9. The facility shall provide one (1) off-street parking space for every three (3) or a fraction thereof, of the total number of employees on the maximum shift, and one (1) off-street parking space for each facility vehicle.

10. Existing facilities qualifying as special residential uses under this chapter and legally operating prior to the effective date of this chapter, also known as "BPS-permitted facilities," shall be exempt from the provisions of this chapter.

11. There shall be no more than one (1) special residential use unit within a radius of five hundred

(500) feet of another special residential use, and no city block may have more than two (2) special residential uses. However, one (1) occupant with a business license may expand their operation to another parcel within a five hundred-foot radius through a conditional use permit. This provision shall not apply in the event that a BPS-permitted facility, operating prior to the effective date of this chapter, submits an application to expand any existing facility.

B. Exceptions:

1. Sheltered workshops and residence facilities authorized by RSMo 205.968 to 205.972 (2000), as amended, shall be and are hereby exempted from any plat and petition process and density requirements set forth under this chapter.

2. Group homes, as authorized by RSMo 89.020 (2019), as amended, shall be and are hereby exempted from any plat and petition process and density requirements set forth under this chapter.

3. Dormitories as defined in this Chapter are exempt from the plat and petition process and density requirements set forth under this Chapter if the facility is (1) both owned and operated by a state or private university or college, and (2) located within the boundaries of said state or private university or college on a designated campus of not less than thirty (30) acres. (Ord. No. 71928, § 4, 11-19-2024.)

26.75.050. Requirement of operations plan.

A. When applying for a permit as provided under this chapter, applicants seeking to open a congregate shelter, single-room occupancy shelter, or transitional housing shall also be required as part of said application process to submit an Operations plan before any hearing. Applicant shall obtain a written confirmation of receipt from the Zoning Office when an operations plan is submitted as part of an application for a congregate shelter, single-room occupancy shelter, or transitional housing special residential use.

B. The operations plan shall be made available to the Zoning Office, Building Official, and any other City department where appropriate. The operations plan further shall be available for public inspection in the office of the Building Official as a physical written copy and as an electronic copy.

C. For purposes of this section, an "operations plan" shall include the following:

(1) an organizational tree including an estimated total number of professional staff and volunteers that will work at the proposed facility;

(2) The name, address, telephone number, and email address for a representative of the proposed facility who is available during all hours of operation;

(3) The estimated number of beds to be provided;

(4) The estimated average population per month;

(5) A description of the services to be provided, such as job placement, drug and alcohol treatment, and other rehabilitative or training services;

(6) A description of the population expected to be served, for example women, women and children, single men, families, etc.;

(7) The expected length of stay per person;

(8) An identification of any schools within a radius of five hundred (500) feet of the proposed premises and any plans to address any potential issues or concerns;

(9) A plan for addressing potential threats to public health and/or public safety, including but not limited to protocols around drug possession and use, possession of weapons, and physical altercations that take place on the premises, including protocol(s) for an incident that requires the immediate removal of a facility resident;

(10) A statement from the applicant that, in providing housing and any other services, the facility will not discriminate within the population to be served as specified in the operations plan against any person on the basis of race, marital status, color, age, religion, sex, sexual orientation, gender identity or expression, familial status, disability, national origin or ancestry. If unable to provide a statement, please explain;

(11) An affirmative statement that the information the applicant is submitting in the operations plan is an accurate representation of planned operations; and

(12) Any other information the applicant and/or any City department believes could be helpful to explain the operation and compatibility of the proposed facility with the proposed location.

D. The Building Commissioner or Zoning Office shall be permitted to seek the insight, feedback, or input from other City departments regarding the contents of an operations plan, where appropriate.

1. No hearing date for an application for a conditional use permit shall be set until the Zoning Office has provided written confirmation that the Zoning Office has received an operational plan from the applicant. The Building Division and any other department may

proceed forward with any inspections, plan reviews, or other evaluations while said confirmation of receipt may be pending.
(Ord. No. 71928, § 4, 11-19-2024.)

26.75.055 Operation without compliance prohibited.

It shall be unlawful to operate a special residential use without first complying with the requirements as set forth under this chapter.
(Ord. No. 71928, § 4, 11-19-2024.)

Chapter 26.76

SHORT-TERM RENTAL

Sections:

26.76.010 Purpose.

26.76.020 Definitions.

26.76.030. Use regulations for short-term rentals.

26.76.010 Purpose.

The purpose and intent of this Chapter 26.76, Short-Term Rental, is to define and address the location, establishment and operation of all short-term rental facilities in order to ensure the health, safety and general welfare of the residents of the City of St. Louis.
(Ord. No. 71730, § 2, 11-6-2023.)

26.76.020 Definitions.

A. *Dwelling unit,* for purposes of this chapter, means a room or group of rooms with cooking and sanitary facilities, occupied or arranged for occupancy by a single family, as defined in the existing zoning code.

B. *Short-term rental* is a lodging use, that is not a hotel or motel, RV park or campground, any type of institutional dwelling, timeshare property, or bed and breakfast. "Short-term rental" means a rental of any dwelling unit, in whole or in part, within the City of St. Louis, to any person(s) for transient use other than (1) in a permitted bed and breakfast; (2) ongoing month to month tenancy for the same dwelling; or (3) a home exchange for which there is no payment. "Short-term rental" allows residential occupancy of the rented dwelling for a term of thirty (30) days or less, and requires that the short-term rental use is permitted to operate pursuant to a current and valid permit on file with the City.

C. *Short-term rental agent* means a person or organization, authorized by the short-term rental owner, as the operator of a short-term rental unit on the short-term rental permit application. Such an operator shall be available for and responsive to contact at all times. The short-term rental agent of occupied short-term rentals shall be the principal resident, either the owner or the tenant/lessee of the owner and authorized by the owner for short-term rental.

D. *Short-term rental, non-occupied* means a short-term rental unit not used as a principal residence by either the owner or the tenant/lessee authorized by the owner for short-term rental.

E. *Short-term rental, occupied* means a short-term rental unit used as the principal residence by either the owner or the tenant/lessee of the owner and authorized by the owner for short-term rental. A resident can have only one (1) principal residence.

F. *Short-term rental owner* means the owner of record of the property as reflected in the City of St. Louis Assessor records.

G. *Short-term rental permit* is the permit issued by the Building Division of the City of St. Louis to the short-term rental owner or the designated short-term rental agent who has submitted the required documentation and met the requirements set forth in this chapter and in Chapter 25 of the Revised Code for operation of a short-term rental unit. Short-term rentals, non-occupied shall require a graduated business license to obtain a short-term rental permit. Short-term rental permits shall only be issued to natural persons, and not to business entities.

H. *Short-term rental unit* shall mean a dwelling unit, in whole or in part, used as a short-term rental. A short-term rental unit may be either a short-term rental, occupied or a short-term rental, non-occupied.
(Ord. No. 71940, § 3, 12-10-2024; Ord. No. 71730, § 3, 11-6-2023.)

26.76.030. Use regulations for short-term rentals.

Short-term rentals as regulated under City ordinances are permitted in every zoning district, except in districts zoned "Single Family A" in which they are a conditional use.
(Ord. No. 71940, § 4, 12-10-2024.)

Chapter 26.80

USE, HEIGHT AND AREA EXCEPTIONS

Chapters:

26.80.010	**Conditional uses.**
26.80.030	**Height exceptions.**
26.80.040	**Area exceptions.**
26.80.045	**Planned transit station area exceptions.**
26.80.050	**Planned unit development district.**
26.80.060	**Home occupations.**
26.80.070	**Community Unit Plan (CUP).**

26.80.010 Conditional uses.

A. *Purposes.* There are a number of uses that present unique problems with respect to their location and relationship with potential surrounding land uses. These uses are not allowed in a particular zoning district by right. However, they may be made compatible or appropriate by attaching certain conditions to their development.

B. *Authority.* The authority to issue conditional use permits is hereby delegated to the Board of Public Service.

C. *Application and Submission Contents and Procedure.*

1. An application for a conditional use permit may be filed by the owner, tenant or their representative, or any prospective owner, tenant, or their representative, of the property in question.

2. Applications for conditional use permits shall be filed with the Zoning Administrator and shall be accompanied by data, plans, and information as prescribed by the Board of Public Service to assure the fullest understanding of the application. One copy of the application shall be filed at the same time with the Board of Public Service. The Zoning Administrator shall provide written notification of an application for a conditional use permit to the Aldermen in whose ward the conditional use is proposed. A fee, set forth in Chapter 26.98, shall be due at the time the Applicant requests a conditional use hearing.

D. *Review Procedures.*

1. The Community Development Commission shall then have forty-five (45) days to submit findings of fact and recommendations to the Board of Public Service. The Commission may delegate the review to the Director of the Community Development Agency. If no report is received within the forty-five (45) days, it will be assumed that the Community Development Commission approves the issuance of a conditional use permit.

2. Upon the receiving of the application for filing, the Board of Public Service shall set a date for, and shall conduct, a public hearing on the application within forty-five (45) days. The Zoning Administrator shall publish and post a notice of the public hearing at least fifteen (15) days prior to the hearing date. The notice shall be published in a newspaper of general circulation in the City. The notice shall also be posted prominently on the site and on the block of the property in question.

3. The Board of Public Service shall have made a ruling within seven (7) days after the forty-fifth (45th) day referred to in Subsection A of this section. A written report shall be filed, which shall include the conditions and restrictions applicable to the use in question.

4. The conditional use permit shall apply to the use in question as long as no changes are made to the site or the structure.

5. A conditional use permit may be valid for a period of one (1) year. Within that time, a building permit shall be obtained and construction started or, in the case where no building permit is required, an occupancy permit shall be obtained or the conditional use permit shall become null and void provided that the one (1) year time limitation shall be tolled by a force majeure.

E. *Standards.* The Board of Public Service shall not approve a conditional use unless the Board finds that the use conforms to the following standards:

1. The use will not be detrimental to the public health, safety, morals or general welfare;

2. The use will not cause serious injury to the neighboring property by hindering use or reducing or impairing property values;

3. The use will contribute to, enhance, and promote the general welfare and convenience of the specific location;

4. The use will complement or be compatible with the surrounding uses and will not have a negative impact on adjacent uses or community facilities; and

5. The use shall, in all other respects, conform to the applicable zoning regulations and standards, including, without limitation, the particular regulations and standards stated for particular conditional uses in the various zoning districts.

F. *Conditions and Restrictions.* The regulations applicable to conditional uses stated in this Zoning Code are minimum standards. When approving a conditional use permit, the Board of Public Service may stipulate additional conditions and restrictions as necessary to ensure that the use complies with the standards of Subsection D of this section. (1994 C., § 26.80.010; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 59979, § 21(part), 1986.)

26.80.030 Height exceptions.

Subject to the same review procedures as those in Section 26.80.010, the following height exceptions may be authorized:

A. On through lots one hundred twenty (120) feet or less in depth, the height of a building may be measured from the street level on either street. On through lots more than one hundred twenty (120) feet in depth, the height regulations and basis of height measurements for the street permitting the greater height shall apply to a depth of not more than one hundred twenty (120) feet from the street.

B. Grain elevators or gas tanks to be erected to a height in excess of that permitted by the height regulations.

C. Buildings and structures erected by public utility (service) corporations for public convenience or welfare, except that within any dwelling district the height regulations governing public utility corporation buildings and structures shall be the same as the height regulations for churches and schools. (1994 C., § 26.80.030; Ord. No. 59979, § 21(part), 1986.)

26.80.040 Area exceptions.

Subject to Section 26.80.010, an exception may be authorized for an accessory building to exceed twelve (12) feet in height. (1994 C., § 26.80.040; Ord. No. 70555, § 2, 6-17-2017; Ord. No. 59979, § 21(part), 1986.)

26.80.045 Planned transit station area exceptions.

All parcels or fractions thereof within a one half-mile radius of the planned Northside-Southside Metro transit stations (NS-SS Metro Stations) on the Green Line light rail alignment, being approved by the East West Gateway Council of Governments Board of Directors on February 28, 2024 and as indicated on the map attached to Ord. No. 71886 as exhibit A, are subject to the regulations of this Zoning Code, except the following shall be allowed:

A. Parking requirements for residential, restaurant, grocery and other retail and professional and general office uses in the "B" Two-Family Dwelling District through the "H" Area Commercial District and the "J" Industrial District and the "K" Unrestricted District may be reduced up to twenty-five (25) percent provided they meet the parking lot layout standards in Section 26.16.080(D).

B. Density of population (i.e., land area per dwelling unit) requirements in the "B" Two-Family Dwelling District through the "H" Area Commercial District may be reduced up to forty (40) percent.

C. All residential structures and mixed residential and commercial structures in the "F" Neighborhood Commercial District and the "G" Local Commercial and Office District may be erected to a height of four (4) stories or sixty (60) feet.
(Ord. No. 71886, § 1, 8-14-2024.)

26.80.050 Planned unit development district.

A. *Purpose.* The planned unit development district (PUD) is intended, by site plan review and other procedures hereinafter set forth, to encourage the appropriate development of residential, or commercial uses, or the combination thereof, in the best interests of the City. Specifically, the purpose of the district is to:

1. Provide for a scale and flexibility of development which could not otherwise be achieved through the existing single use zoning districts, without detriment to neighboring properties;

2. Encourage site consolidation and planned mixed use development;

3. Allow for changes that may occur in building technology and changes in market demand for various building types; and

4. Provide for the development of property while protecting the ecological, topographical, geological, and historic features that might be damaged by meeting fixed single use district regulations.

B. *Use Regulations.* All uses permitted in the A, B, C, D and E dwelling districts and the F and G commercial districts are permitted, provided the procedures outlined in this section are followed.

C. *Conditional Uses.* All possible conditional uses specified in the A, B, C, D and E dwelling districts and the F and G commercial districts may be permitted in determining the privileges and conditions that shall be approved for a PUD.

D. *Sketch Plan Submittal.* The applicant shall submit at least two copies of a sketch plan to the Planning Commission, accompanied with a filing fee, set forth in

Chapter 26.98, on forms furnished by the Planning Commission. The sketch plan shall include both maps and a written statement and shall show enough of the area surrounding the proposed PUD to demonstrate the relationship of the PUD to adjoining uses. The maps may be in general, schematic form, and must contain the following information:

1. The existing topographic character of the land;

2. The existing and proposed land uses and approximate location of buildings and other structures proposed to be demolished or to remain;

3. The character and approximate density of dwellings;

4. The approximate location of major thoroughfares; and

5. Public uses, including schools, parks, playgrounds and other open spaces.

6. The written statement must contain the following information:

a. An explanation of the character of the PUD including the number of any proposed residential units and the proposed square footage for any commercial or industrial space;

b. A statement of proposed financing;

c. A statement of the present ownership of all the land included within PUD; and

d. A general indication of the expected schedule of development including the projected phases of development, if any.

E. *Community Development Commission Review.* Upon receipt of a sketch plan by the Community Development Commission, it shall refer a copy to the Zoning Administrator and review said sketch and make a report of its findings and recommendations, in writing to the Board of Aldermen no later than the Aldermanic Committee public hearing on the proposed PUD, otherwise a favorable recommendation shall be assumed. The Community Development Commission in making its report to the Board of Aldermen shall set forth as reasons for recommendation for or against the plan and specific evidence and facts as to whether or not the proposed PUD meets the following conditions:

1. That the values of buildings and the character of the property adjacent to the area included in said plan will not be adversely affected;

2. That the proposed development is consistent with the intent purposes of the Zoning Code to promote public health, safety, morals and general welfare; and

3. That the proposed development plan is consistent with any previously approved development plan that may affect the site and with the City's comprehensive plan.

F. *Introduction of Ordinance.* Upon action by the Community Development Commission or forty-five (45) days after the submission of the plan to the Community Development Commission, whichever comes first, a proposed ordinance may be introduced in the Board of Aldermen. When such proposed ordinance is introduced in the Board of Aldermen, the committee to which it is properly referred for consideration shall hold a public hearing and publish notice thereof in accordance with the procedure for rezoning as set out in Section 26.92.040.

G. *Development Plan.* If the Board of Aldermen approves the ordinance for the PUD, a development plan for the PUD shall be submitted to the Community Development Commission for approval. In making its determination whether to approve or disapprove a development plan, the Community Development Commission shall review the development plan for its conformity to the approved sketch plan. The development plan shall show and be accompanied by the following information, expressed in precise dimensions and project data, to assure the fullest understanding of the application:

1. Applicant's name and address;

2. Site plan drawn at 1″ = 50′ or larger (i.e., 1″ = 20′);

3. Site location map showing the site in the context of the City's major street network;

4. A title block shall be included and shall show the following information:

a. Project name;

b. Name of developer;

c. Scale;

d. Date of drawing;

5. The boundaries and all dimensions of the site, including easements;

6. Existing topography and proposed changes at contour intervals or more than five (5) feet;

7. Existing trees of greater than six (6) inch caliber, indicating any that are to be removed;

8. The location and dimensions of all proposed and existing buildings to remain, showing the height (stories and feet) of each building;

9. The location and dimensions of all drives and aisles, and the dimensions and number of parking stalls;

10. Landscape plan showing the size and species of all plant material and related site improvements, including retaining walls, sidewalks, plazas, fountains, etc.;

11. The system of storm water control both during and after construction;

12. The locations and access to all utilities including storm and sanitary sewer, water, gas and electricity;

13. Exterior lighting, showing location, height and type;

14. Project information including the following:

a. Site area in square feet and acres;

b. Commercial building floor area;

c. Building coverage;

d. Site coverage (buildings plus parking and driveways);

e. Parking spaces required and provided;

15. Schematic architectural plans showing floor plans, building elevations, and building sections where necessary for clarification.

H. *Standards.* Except as provided in conditions and restrictions required for a specific PUD by the Board of Aldermen, the following standards shall apply:

1. No setback requirements will be required except those dictated by other City codes;

2. Height requirements shall be the same as those for the least restrictive adjacent residential zoning district. If no residential zoning district is adjacent then the standards shall be the same as those for the "E" Multiple-Family Dwelling District;

3. All lots shall have access to a public or private street either directly or by way of a court or drive maintained under the jurisdiction of a trustee organization;

4. The overall residential density of the PUD should be no greater than that permitted in the "E" Multiple-Family Dwelling District;

5. The PUD shall include at minimum twenty (20) percent of the site in open space, half of which may be privately controlled;

6. The project shall not be required to be on one contiguous site; however, the PUD shall extend in area only so far as it can still reasonably be considered one development. Any intervening property shall be included on the development plan and shall be described;

7. Buffering or screening with vegetation may be required between separate uses or between existing and proposed development.

I. *Permits and Certificates.* If the Community Development Commission approves the development plan for the PUD, building permits and certificates of occupancy may be issued therefor, even though the use of land, height and location of structures, including yards and open spaces, does not conform in all respects to the zoning district regulations.

J. *Phased Development.* In those developments which are to be constructed in phases, the ordinance shall approve the entire project, however, a development plan for only the initial phase of construction may be submitted to the Community Development Commission. Construction of subsequent phases will require approval of development plans. These plans must conform to the originally approved sketch plan.

K. *Changes in the PUD.* Any changes in a planned unit development approved by the Board of Aldermen consisting of a change in boundary, change in use, or change in projected schedule of development must be reintroduced into the Board of Aldermen as an amendment to said planned unit development.

L. *Period of Validity.* The planned unit development approval shall be valid for a period of eighteen (18) months unless within that time a building permit is obtained and substantial construction is commenced. The Community Development Agency may grant extensions upon written request of the applicant. There is no limit on the time of construction, however, a time limit may be required as a condition of approval.

M. *Transferability of Permit.* A permit for a PUD is transferable. (1994 C., § 26.80.050; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 59979, § 21(part), 1986.)

26.80.060 Home occupations.

A. Home occupations shall be permitted if the following requirements are met:

1. The home occupation does not change the outside appearance of the residential dwelling;

2. The home occupation does not change the primary use of the home from residential;

3. The home occupation does not generate traffic, parking, sewerage, refuse, water use, noise, dust, odors, or vibrations in excess of what is normal in a residential neighborhood;

4. The home occupation does not create a hazard to person or property, result in electrical interference, involve the storage of flammable or hazardous materials, become a public or private nuisance, or is not classified by the City as a nuisance property pursuant to Ordinance Number 69730 or its successor ordinances;

5. The home occupation does not have storage or display any occupation-related equipment, including vehicles that openly display occupation-related equipment, outside the home;

6. The home occupation does not regularly and routinely employ anyone who is not also a resident of the home to perform work inside the home;

7. The applicant of the home occupation resides at the home;

8. The home occupation does not display a sign;

9. The home occupation does not regularly and routinely accept customers, clients, or the general public into the home;

10. The home occupation does not advertise, solicit or invite customers, clients, or the general public to the home;

11. The home occupation is within a property with a valid Certificate of Inspection pursuant to Chapter 25.56 of the Revised Code of the City of St. Louis;

12. The home occupation and the property remain in compliance with all City laws, rules, and regulations.

B. The following are prohibited as home occupations:

1. Animal clinics and boarding facilities, including kenneling and day care;

2. Dancing schools;

3. Doctor and dentist offices;

4. Mortuaries;

5. Stables or kennels;

6. Private clubs;

7. Repair shops;

8. Restaurants;

9. Tourist homes;

10. Automobile repair or paint shops, sales and leasing of new or used autos and auto detailing and washing.

C. The following home occupations shall be considered a conditional use that may be allowed subject to the provisions of Section 26.80.010 of the Revised Code of the City of St. Louis:

1. Home cooking, preserving or processing of food for resale;

2. Home daycares;

3. Recording and film studios;

4. Home office use for general construction, electrical, painting, plumbing, or landscaping contractors;

5. Any proposed home occupancy that is not specifically prohibited by Subsection B of this Section, but cannot comply entirely with the standards contained in Subsection A of this Section.

D. A fee, set forth in Chapter 26.98, shall be due at the time an application is made for a home occupancy waiver. (1994 C., § 26.80.060; Ord. No. 70150, § 1, 11-24-2015; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 59979, § 21(part), 1986.)

26.80.070 Community Unit Plan (CUP).

A. The owner or owners of any tract or tracts of contiguous land comprising an area of not less than fifteen (15) acres, including streets and alleys except boundary streets, may submit a plan for the use and development of all of such tract or tracts of land to the Community Development Commission.

B. A filing fee, set forth in Chapter 26.98, shall be required at the time such a plan is submitted to the Planning Commission.

C. Upon receipt of a plan by the Community Development Commission, it shall review said plan and make a report of its findings and recommendations, in writing to the Board of Aldermen. The Community Development Commission in making its report to the Board of Aldermen shall set forth its reasons for approval or disapproval of the plan and specific evidence and facts as to whether or not the proposed Community Unit Plan meets the following conditions:

1. That the values of buildings and the character of the property adjacent to the area included in said plan will not be adversely affected;

2. That said plan is consistent with the intent and purposes of the Zoning Code to promote public health, safety, morals and general welfare;

3. That the average lot area per family contained in the site, exclusive of the area occupied by street, shall not be less than the lot area per family required for the district in which the development is located.

D. Upon the receipt of the Community Unit Plan in the Board of Aldermen or the expiration of forty-five (45) days from the date of the submission of the plan to the Community Development Commission, a proposed ordinance may be introduced in the Board of Aldermen. When such proposed ordinance is introduced in the Board of Aldermen, the Committee to which it is properly referred for consideration shall hold a public hearing and publish notice thereof in accordance with the procedure for rezoning as set out in Section 26.92.040 of the Code. If the Board of Aldermen approves the ordinance for the Community Unit Plan, building permits and certificates of occupancy may be issued therefor, even though the use of land, height and location of structures, including yards and open spaces, does not conform in all respects to the zoning district regulations.

E. Any proposed change in any Community Unit Plan consisting of a change in boundary or change in use shall be submitted for approval as an amendment to the Community Unit Plan in the same manner as provided in Subsections C and D of this section.

F. Any other proposed change shall be submitted for approval as an amendment to the Community Unit Plan in the same manner as provided for the granting of conditional use permits in accordance with the procedure set out in Section 26.80.010 of the Code.

G. At the time any amendment to a Community Unit Plan is submitted a filing fee, set forth in Chapter 26.98, shall be required. (1994 C., § 26.80.070; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 63299, § 2, 1994; Ord. No. 59979, § 21(part), 1986.)

Chapter 26.82

FORM-BASED DISTRICTS

Sections:

26.82.010	**Purpose.**
26.82.020	**Definitions.**
26.82.030	**Criteria.**
26.82.040	**Minimum requirements.**
26.82.050	**Optional regulatory subjects.**
26.82.060	**Procedures for approval of a form-based district.**
26.82.070	**Amendments.**
26.82.080	**Administration of form-based districts.**

26.82.010 Purpose.

The purpose for the creation of a form-based district as a zoning overlay district shall be to encourage sustainable growth and to establish areas of a particular desired scale and siting relationships. The form-based districts will promote the health, safety, morals or general welfare of the community by effectively regulating improvements and enhancing the vibrancy and atmosphere of a neighborhood or a commercial corridor by providing a cohesive urban form and character. A form-based district is designed to assist in the implementation of the Strategic Land Use Plan, as well as planning and development initiatives, such as detailed neighborhood-level plans and commercial district plans and development projects. A form-based district is also intended to reinforce the character of existing City historic districts and not purposely alter the character of any existing National Register historic district. (1994 C., § 26.82.010; Ord. No. 69199, § 1, 7-18-2012.)

26.82.020 Definitions.

For purposes of this chapter, the following terms, phrasing, words and their deviations shall have the meaning given herein. Any term not herein defined shall be construed as defined in Chapter 26.08 of the Zoning Code.

A. *Architectural Standards.* Regulations controlling external architectural materials and quality.

B. *Building Development Standards.* Regulations regarding building types, frontage types and architectural standards.

C. *Building Envelope Standards.* Regulations controlling the configuration, features, and functions of buildings.

D. *Building Type.* A structure defined by the combination of configuration and placement (e.g., detached single-family dwelling, rowhouse).

E. *Build-to Line.* A line parallel to the property line where the facade of a building is required to be located.

F. *Frontage Type.* The architectural element of a building between the public right-of-way and the building located on the abutting private property (e.g., porch, balcony).

G. *Regulating Plan.* A plan or map of the regulated area designating the locations (also referred to as zones) where different building envelope standards apply.

H. *Sustainability Standards.* Regulations controlling issues such as storm water drainage and infiltration, tree protection and solar access.

I. *Thoroughfare Standards.* Regulations regarding the design of different types of thoroughfares (e.g., pavement width, number and width of traffic lanes, bicycle lanes and parking lanes, landscape type and sidewalks).

J. *Zoning Overlay District.* A designation for a physical area with mapped boundaries that are superimposed over the City's official zoning district map's underlying zoning districts and text detailing requirements that are either added to, or in place of, those underlying zoning districts' regulations. (1994 C., § 26.82.020; Ord. No. 69199, § 2, 7-18-2012.)

26.82.030 Criteria.

Only those areas that meet the following criteria shall be eligible to become a form-based district:

A. A minimum geographic area consisting of at least 15 contiguous acres. Land may be under common or multiple ownership.

B. Identification and documentation of a specific attribute or rationale of form-based zoning that would help the area to develop into its full potential and that is currently unavailable in the City's existing Zoning Code.

In addition, a form-based district shall document that the proposed area exhibits at least one of the following characteristics:

A. An area that is experiencing inappropriate development (e.g., development of automobile-oriented commercial uses along a traditional neighborhood commercial street).

B. An area that is expecting or experiencing significant change in terms of development activity (e.g., an area primarily consisting of vacant land and vacant buildings for which a substantial development is proposed).

C. A desire to encourage a transformation of an area or to make general improvements to an area (e.g., a focus on transit-oriented development or a more pedestrian- and bicyclist-friendly environment). (1994 C., § 26.82.030; Ord. No. 69199, § 3, 7-18-2012.)

26.82.040 Minimum requirements.

No form-based district shall be approved unless at minimum it contains the following items:

A. A regulating plan in graphic form, as specified by the Planning Commission, which designates a specific classification (building envelope standards) for every parcel in the form-based district. The regulating plan shall include one or more zones where different building envelope standards apply.

B. Building envelope standards that include graphics that clearly indicate for each classification of property allowable encroachments, build-to lines, setbacks, building forms, building heights, building types and parking.

C. An indication as to how the proposed regulating plan, building envelope standards and building development standards would be reconciled with any applicable existing historic district standards for City historic districts adopted by ordinance.

D. A written statement of purpose outlining the goals and objectives for the form-based district.

E. Identification of the area for which the form-based district will apply, including a generalized metes and bounds legal description of the area.

F. Documentation of a planning process that was used to establish the plan or vision for the form-based district.

G. Documentation of adequate public participation during the planning process.

H. Support of the Alderman or Aldermen representing the proposed area.

I. Documentation of meeting the required criteria listed in Section 26.82.030.

J. Additional information as needed to ensure the proposed form-based district contains sufficient material for adequate review by the Planning Commission. (1994 C., § 26.82.040; Ord. No. 69199, § 4, 7-18-2012.)

26.82.050 Optional regulatory subjects.

In addition to the minimum requirements, a form-based district may also include building development standards, use regulations, provisions that address non-conforming uses (which may include reducing the time period for discontinuing a non-conforming use to a period of time not less than thirty days), thoroughfare standards, sustainability standards, signage regulations, and any other regulations that would promote the goals of the form-based district. A form-based district will only serve as an overlay code on the subject matters specified in each form-based district and regulatory subjects not included in a form-based district will continue to be regulated by the existing Zoning Code. (1994 C., § 26.82.050; Ord. No. 69199, § 5, 7-18-2012.)

26.82.060 Procedures for approval of a form-based district.

A form-based district is established by ordinance initiated by one of the following two procedures: initiation by the Planning Commission or a formal application process by an applicant.

A. The Planning Commission may on its own initiative propose the enactment of a form-based district for any portion of the City of St. Louis.

B. Prior to the filing of an application for approval of a form-based district with the Planning Commission, the applicant shall schedule a pre-application meeting with the City's Director of Planning and the Zoning Administrator. The purpose of the meeting is to allow the Director of Planning and the Zoning Administrator to inform the applicant of all applicable ordinances, rules, regulations, plans, existing historic districts, policies, standards and procedures that may affect the applicant's planning and development initiative. This consultation would also allow the applicant to present a general concept of the proposed planning and development initiative prior to the preparation of any detailed plans and associated development standards. The applicant shall submit at the pre-application meeting a preliminary application, which shall include the following information:

1. Identification of the applicant and contact person, as well as contact information;

2. Preliminary identification of the form-based district's boundaries;

3. A preliminary written statement of purpose outlining the applicant's intentions for the form-based district;

4. Conceptual-level sketch plans and ideas regarding proposed uses, building forms and densities;

5. Identification of professional planners, architects or others working on the plan;

6. A plan for public participation in the planning process;

7. Support from the Alderman or Aldermen representing the proposed area;

8. Preliminary documentation that the area meets the required criteria listed in Section 26.82.030; and

9. Any additional information as determined by the Director of Planning and the Zoning Administrator;

C. After meeting with the Director of Planning and the Zoning Administrator, an applicant may prepare its application on a form to be provided by the Zoning Administrator. The applicant may submit to the Planning Commission its application for the proposed form-based district, as defined in Sections 26.82.040 and 26.82.050, along with a non-refundable application fee, payable in cash, check or money order to "City of St. Louis," as provided for under the fee schedule in Chapter 26.98 of the Zoning Code, for those proposed form-based districts following a formal application process. The Planning Commission shall have ninety (90) days from the time of submittal to approve or disapprove the form-based district. Upon receipt of the recommendation of the Planning Commission or the expiration of ninety (90) days from the date of first filing such application, an ordinance may be enacted into law pursuant to the provisions of Chapter 26.92 of the Revised Code of the City of St. Louis prescribing procedures for amendments or changes to the boundaries or regulations in the zoning laws of the City of St. Louis. (1994 C., § 26.82.060; Ord. No. 69199, § 6, 7-18-2012.)

26.82.070 Amendments.

Any amendment or change in the boundaries or regulations of an established form-based district shall follow the procedures under Chapter 26.92 of the Zoning Code. (1994 C., § 26.82.070; Ord. No. 69199, § 7, 7-18-2012.)

26.82.080 Administration of form-based districts.

An approved form-based district is intended to exist as a zoning overlay district with the City's existing Zoning Code. The overlay district shall represent and be depicted as a mapped geographic area on the City's official zoning district map. The overlay district may be applied over any zoning district and may encompass one or more zoning districts. Upon approval of an ordinance establishing a specific form-based district:

A. Administration of the form-based district shall be conducted by the office of the Zoning Administrator. The Building Commissioner may, with the approval of the Director of Public Safety, appoint one (1) or more additional members of his department, as well as members of other City departments who have a particular skill or competence to act for the Zoning Administrator. The term "Zoning Administrator" as elsewhere used in this zoning ordinance shall be deemed to include such appointees.

B. Minor waivers regarding an established form-based district may be granted or denied by the Zoning Administrator, as referenced in Section 26.88.020(I)(1)—(7) of the Zoning Code.

C. Appeals regarding a form-based district shall be heard by the Board of Adjustment. (1994 C., § 26.82.080; Ord. No. 69199, § 8, 7-18-2012.)

Chapter 26.84

BOARD OF ADJUSTMENT

Sections:

26.84.010 Board established.
26.84.020 Rules and regulations.
26.84.030 Meetings.
26.84.040 Appeals.
26.84.045 Notice required of Board.
26.84.050 Jurisdiction.

26.84.010 Board established.

A Board of Adjustment is hereby established. The word "Board" when used in this section shall be construed to mean the Board of Adjustment. The Board shall consist of five (5) members who shall be residents of the City of St. Louis, and who shall be appointed by the Mayor subject to approval by resolution adopted by the Board of Aldermen.

A. One (1) member shall be a graduate of an accredited school of architecture or a licensed architect, and one (1) shall be a licensed real estate broker or agent. Each of these two (2) members shall have not less than three (3) years of experience in their profession.

B. The term of office of the members of the Board of Adjustment shall be for four (4) years. Members of the Board of Adjustment existing at the time of the effective date of this section shall be continued in office until the expiration of their term of office.

C. Three (3) alternate members may be appointed as provided above to serve in the absence or disqualification of the regular members. The alternate members shall also be residents of the City of St. Louis who shall serve for a term of one (1) year.

D. Members shall receive an expense allowance as set by ordinance. Expenses incurred in the discharge of official business of the Board may be allowed, but in no event shall these expenses of the Board exceed the amount appropriated by the City.

E. Vacancies shall be filled for the unexpired term only.

F. Members shall be removable for cause by the Mayor upon written charges and after a public hearing.

G. The Board shall elect its own Chairman, who shall serve for one (1) year. (1994 C., § 26.84.010; Ord. No. 65763, § 2, 2002; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

Editor's Note:

Ordinance 59981 was passed July 31, 1986.

City Counselor Ops.: 8493A, 9032, 9121

McQuillin:

22.228 et seq. Board of adjustment, review and zoning appeals

26.84.020 Rules and regulations.

The Board of Adjustment shall submit to the Clerk of the Board of Aldermen on or before June 1 of each year proposed rules and regulations as it may deem necessary to carry into effect the provisions of the Zoning Code. Said proposed rules and regulations shall be subject to the approval and adoption by resolution of the Board of Aldermen on or before June 30 of said year. (1994 C., § 26.84.020; Ord. No. 64195, § 1, 1997; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

City Counselor Ops.: 8493A, 9032, 9121, 10039, 10324

26.84.030 Meetings.

The meetings of the Board shall be held at the call of the Chairman, and at such other time as the Board may determine. Such Chairman, or in his absence the Acting Chairman, may administer oaths and compel the attendance of witnesses. All meetings of the Board shall be open to the public. The Board shall keep minutes of its proceedings, showing the vote of each member on each question, or, if absent or failing to vote, indicating such actions, all of which shall be immediately filed in the office of the Board and shall be a public record. (1994 C., § 26.84.030; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

26.84.040 Appeals.

A. Appeals to the Board may be taken by any person aggrieved or by any officer, department, board or bureau of the City affected by any decision of the Building Commissioner or the Board of Public Service. Such appeal shall be taken within a reasonable time, as shall be prescribed by the Board by general rule, by filing with the Building Commissioner or the Board of Public Service and with the Board a notice of appeal specifying the grounds thereof. The Building Commissioner or the Board of Public Service shall forthwith transmit to the Board all the papers constituting the record upon which the action appealed from is taken.

Any appeal stays all proceedings in furtherance of the action appealed from, unless the Building Commissioner or the Board of Public Service certifies to the Board, after notice of appeal shall have been filed with him or it, that, by reason of facts stated in the certificate, a stay would, in his opinion, or its opinion, cause imminent peril to life or property.

B. In such case proceedings shall not be stayed otherwise than by a restraining order which may be granted by the Board or by a court of record on application or notice to the Building Commissioner or the Board of Public Service, and on due cause shown. The Board shall fix a reasonable time for the hearing of the appeal, give public notice thereof, as well as due notice to the parties in interest and decide the same within a reasonable time. At the hearing any party may appear in person or by agent or by attorney. A fee, set forth in Chapter 26.98, shall be a paid to the Board at the time an appeal is filed. (1994 C., § 26.84.040; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 64654, § 2, 1999; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

City Counselor Ops.: 10029, 10119

Cases:

Order of board of adjustment reversing, on appeal, building commissioner's denial of permit was void. *Himmel v. Leimkuehler*, 329 S.W. 2d 264 (1959).

Petitioners were "aggrieved parties" entitled under statute and ordinance to maintain certiorari proceedings to review decision of board of adjustment. *Hernreich v. Quinn,* 168 S.W. 2d 1054 (1943).

Corporation which owned no realty and had no assets of any kind, was not an aggrieved person with meaning of statute authorizing review by certiorari of decisions of the board. *Lindenwood Improvement Assoc. v. Lawrence,* 278 S.W. 2d 30 (1955).

Authority to grant variance from zoning requirements should be exercised sparingly and in keeping with spirit of zoning plan and public welfare. *Arens v. City of St. Louis,* 872 S.W. 2d 631 (1994).

26.84.045 Notice required of Board.

Whenever any notice of appeal shall be filed with the Board of Adjustment, the Board shall promptly notify the Alderman of the ward in which the property affected by the appeal may be located, after Community Development Commission and the Director of Public Safety. (1994 C., § 26.84.045; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

26.84.050 Jurisdiction.

The Board shall have the following powers:

A. To hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by an Administrative Official or Agency in the enforcement of the Zoning Code;

B. To permit the extension of a use district where the boundary line of a district divides a lot in a single ownership on April 25, 1950;

C. To interpret the provisions of the Zoning Code in such a way as to carry out the intent and purpose of the plan, as shown upon the maps fixing the several districts accompanying and made a part of the Zoning Code where the street layout actually on the ground varies from the street layout as shown on the maps aforesaid;

D. In passing upon appeals, where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of the Zoning Code, to vary or modify the application of any of the regulations or provisions of such code relating to the use, construction or alteration of buildings or structures or the use of land so that the spirit of the code shall be observed, public safety and welfare secured a substantial justice done, and that the granting of the variance is in keeping with the City's comprehensive plan;

E. In exercising the above-mentioned powers, the Board may, in conformity with the provisions of law, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from, and may make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the Building Commissioner or the Board of Public Service. The concurring vote of four (4) of the members of the Board shall be necessary to reverse any order, requirement or determination of the Building Commissioner or the Board of Public Service, or to decide in favor of the applicant on any matter upon which it is required to pass under the Zoning Code; provided, however, that the action of the Board shall not become effective until after the resolution of the Board setting forth the full reason for its decision and the vote of each member participating therein has been spread upon the minutes. Such resolution immediately following the Board's final decision shall be filed in the office of the Board and shall be open to public inspection;

F. The Board of Adjustment shall cause to be published in the City Journal a statement showing

disposition of each appeal and shall mail a copy of said statement to the Aldermen of the ward in which the property affected by the appeal may be located, the Community Development and the Director of Public Safety;

G. Any person or persons jointly or severally aggrieved by any decision of the Board of Adjustment or any officer, department, board, or bureau of the municipality may present to the Circuit Court of the City a petition, duly verified, setting forth that such decision is illegal, in whole or in part, and specifying the grounds of the illegality. Such petition shall be presented to the court within thirty (30) days after the filing of the decision in the office of the Board as provided by RSMo 89.110. Upon the presentation of such petition the court may allow a writ of certiorari directed to the Board to review such decision of the Board, and shall prescribe therein the time within which a return thereto may be made and served upon the realtor's attorney which shall be not less than ten (10) days and may be extended by the court. The allowance of the writ shall not stay proceedings upon the decision appealed from but the court may, on application, on notice to the Board and on due cause shown, grant a restraining order. The Board shall not be required to return the original papers acted upon by it, but it shall be sufficient to return certified or sworn copies thereof or of such portions thereof as may be called for by such writ;

H. The return shall concisely set forth such other facts as may be pertinent and material to show the grounds of the decision appealed from, and shall be verified. If, upon the hearing, it shall appear to the court that testimony is necessary for the proper disposition of the matter, it may take additional evidence or appoint a referee to take such evidence as it may direct and report the same to the court with his findings of fact and conclusions of law, which shall constitute a part of the proceedings upon which the determination of the court shall be made. The court may reverse or affirm, wholly or partly, or may modify the decision brought up for review. (1994 C., § 26.84.050; Ord. No. 71412, § 1, 11-12-2021; Ord. No. 59981, § 1(part), 1986; Ord. No. 59979, § 23(part), 1986.)

Cases:

Variance may be granted on evidence of practical difficulty resulting from factors other than physical characteristics of property. *Arens v. City of St. Louis,* 872 S.W. 2d 631 (Mo. App. E.D. 1994).

Challengers' status as alderwomen did not by itself confer standing to challenge zoning variances granted by the Board of Adjustment. *State ex rel. Smith v. Grant,* 943 S.W. 2d 319 (Mo. App. E.D. 1997).

Chapter 26.88

ZONING ADMINISTRATOR

Sections:

26.88.010 Creation and purpose.
26.88.020 Duties and authority.

26.88.010 Creation and purpose.

The office of the Zoning Administrator is hereby created within the Department of Public Safety. The Building Commissioner may, with the approval of the Director of Public Safety, appoint one (1) or more additional members of his department, as well as members of other City departments who have a particular skill or competence to act for the Zoning Administrator. The term "Zoning Administrator" as elsewhere used in this zoning ordinance shall be deemed to include such appointees. (1994 C., § 26.88.010; Ord. No. 59979, § 23(part), 1986.)

26.88.020 Duties and authority.

The Zoning Administrator shall enforce and perform those tasks necessary for administration of this Zoning Code. In addition to, and incidental to this authority, the Zoning Administrator:

A. May conduct inspections of all buildings, structures and land uses to determine compliance with this Zoning Code;

B. Shall approve all zoning certificates and make and maintain records thereof;

C. Shall approve all certificates of occupancy, and make and maintain records thereof;

D. Shall receive, check for compliance with the various submission requirements contained herein, file and forward to the appropriate officials or bodies all applications, special permits, variances and amendments to this Zoning Code and seek the recommendations from such officials and bodies as are required to properly enforce this title;

E. Shall forward to the Board of Adjustment all papers constituting the record upon which actions appealed from are taken;

F. May report in writing to the Planning Commission and the Board of Aldermen on the administration of the Zoning Code with special attention to enforcement problems and deficiencies in its contents, procedures and standards;

G. Shall sit as ex officio Secretary on the Board of Adjustment, without a vote;

H. Shall notify in writing, if any violations of the provisions of this Zoning Code are found, the persons responsible for such violation. In giving this notification, the Zoning Administrator shall indicate the nature of the violation and order the action necessary to correct it. The Zoning Administrator shall order discontinuation of any illegal use of land, buildings or structures, removal of illegal buildings or structures or of illegal additions or alterations, discontinuance of any illegal work being done, or take any other action authorized by this Zoning Code to ensure compliance with or to prevent violation of its provisions;

I. May grant or deny minor waivers from the enforcement of requirements of this Zoning Code in accordance with standards stated below, provided, that any person aggrieved by any such decision of the Zoning Administrator may appeal to the Board of Adjustment pursuant to Chapter 26.84 and no fee shall be paid for filing such an appeal:

1. To permit the reduction in the number of required parking spaces for joint use of parking facilities when evidence shows that the peak parking demand of the different uses occurs at different times;

2. To increase, by not more than twenty-five percent (25%), the maximum distance that required parking spaces may be located from the uses served;

3. To vary the size of the required parking space to allow for dedicated small car parking areas in parking lots which have a low turnover, such as parking for office uses. The small car spaces may be permitted to be seven and a half (7.5) feet by sixteen (16) feet in size;

4. To vary the front, side or rear yards, required of a main or accessory building to allow it to conform to the existing setbacks of abutting or adjacent property;

5. To vary the front, side or rear yards, required of a main or accessory building if evidence is provided showing a need for reduction of yard depths to provide for a permitted use that cannot be provided for by any other permissible means;

6. To increase the height of any accessory structure; and

7. To permit minor repairs or alterations of a nonconforming structure.

8. To vary the number of bicycle racks required under Section 26.16.085.C if site requirements required in Section 26.16.085(B) cannot be met by means of direct access from a street frontage. (1994 C., § 26.88.020; Ord. No. 69148, § 3, 4-4-2012; Ord. No. 67401, § 2, 2007; Ord. No. 59979, § 23(part), 1986.)

Chapter 26.92

CHANGES AND AMENDMENTS

City Counselor Ops.: 7826, 7899, 8012, 8043, 93

Sections:

26.92.010 Initiation of change.

26.92.020 Petition procedure.

26.92.030 Action by Board of Aldermen.

26.92.040 Notice of proposed change.

26.92.010 Initiation of change.

Any amendment or change in the boundaries or regulations herein shall be initiated in the following manner:

A. By motion of the Planning Commission; or

B. By the filing of a petition with the City Zoning Administrator, by the owner or owners of the property within the district. (1994 C., § 26.92.010; Ord. No. 69037, § 2, 11-18-2011; Ord. No. 59979, § 24(part), 1986.)

26.92.020 Petition procedure.

The said petition shall be in writing on a form supplied by the Zoning Administrator and shall contain a complete description of the property involved and shall set forth fully the grounds of such petition and contain a recital of all the facts relied on by the Petitioner. A fee, set forth in Chapter 26.98, shall be paid to the City upon the filing of a petition, and under no conditions shall said filing fee or any part thereof be returned in the event of unfavorable findings or recommendations on said petition by the Commission. After a study and investigation and within sixty (60) days of filing the petition, the Planning Commission shall hold a public hearing after public notice and hearing as provided in Section 26.92.040 and shall report to the Petitioner its findings and recommendations. Where the Planning Commission recommends modification in the requested change, amendment or supplement, said Petitioner may incorporate the recommended modification in the petition and forward it to the Planning Commission for further study and said Commission shall report to the Petitioner its findings and recommendations. (1994 C., § 26.92.020; Ord. No. 71411, § 1, 11-12-2021; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 69037, § 3, 11-18-2011; Ord. No. 59979, § 24(part), 1986.)

26.92.030 Action by Board of Aldermen.

Upon receipt of the recommendation of the Planning Commission or the expiration of sixty (60) days from the date of first filing said petition, the amendment, change or supplement in the form of a proposed ordinance may be introduced in the Board of Aldermen. Upon introduction in the Board of Aldermen in the form of an ordinance, the Planning Commission shall forward to said Board its findings and recommendations. Any amendment, supplement or change in the form of an ordinance pursuant to the provisions of this chapter shall be introduced into the Board of Aldermen within one (1) year from the date of the Planning Commission findings and recommendations. The Board of Aldermen may amend, supplement or change the boundaries or regulations herein or subsequently established. (1994 C., § 26.92.030; Ord. No. 71411, § 1, 11-12-2021; Ord. No. 69037, § 4, 11-18-2011; Ord. No. 59979, § 24(part), 1986.)

26.92.040 Notice of proposed change.

A. When any petition that has as its purpose the making of a change in the boundary of a zoning district map is filed with the Planning Commission, the Planning Commission shall require the Zoning Administrator to:

1. Have a placard containing the words "Proposed change in zoning ordinance in this block" printed in large type, placed in a conspicuous place on or in the immediate vicinity of the property and block in which a change in zoning district boundaries is proposed at least fifteen (15) days prior to any public hearing held by the Planning Commission. Such placard shall also have prominently displayed such relevant facts and information pertaining to the proposed change, a designation by street address of the property(s) to be changed and the date when those interested may appear before the committee and be heard.

2. Have notice of the public hearing on the bill and the proposed changes published in the official paper of the City of St. Louis or a paper of general circulation, at least fifteen (15) days prior to said hearing.

B. Prior to initiating and recommending a change to the provision of the Zoning Code, the Planning Commission must hold a public hearing following the procedure of Subsection 26.92.040.A.2.

c. When a bill proposing an amendment to the provisions of the Zoning Code is introduced in the Board of Aldermen, the committee to which it is referred for consideration shall consider the board bill in keeping with the rules of the Board of Alderman for committees. (1994 C., § 26.92.040; Ord. No. 71411, § 1, 11-12-2021; Ord. No. 69037, § 5, 11-18-2011; Ord. No. 59979, § 24(part), 1986.)

City Counselor Ops.: 8360

Chapter 26.96

PLATS, CERTIFICATES OF OCCUPANCY AND SURVEY FEES

Sections:

26.96.010	**Plats required.**
26.96.020	**Certificates of occupancy—When.**
26.96.030	**Issuance of certificates of occupancy.**
26.96.040	**Front yard survey.**

26.96.010 Plats required.

All applications for building permits shall be accompanied by a plat in triplicate drawn to scale, showing the actual dimensions of the lot to be built upon, the size of the buildings to be erected, and such other information as may be required by the Building Commissioner, which is necessary to provide for the enforcement of the Zoning Code. (1994 C., § 26.96.010; Ord. No. 59979, § 25(part), 1986.)

26.96.020 Certificates of occupancy—When.

A certificate of occupancy shall be required where there is a change in the use of land or where a new building is erected or an existing building is structurally altered or changed or converted in whole or in part. (1994 C., § 26.96.020; Ord. No. 59979, § 25(part), 1986.)

26.96.030 Issuance of certificates of occupancy.

Certificates of occupancy shall be issued by the Building Commissioner when, after inspection, it is found that the premises complies with the regulations of the Zoning Code. Certificates of occupancy and compliance shall be issued within ten (10) days after written application therefor; or if erection or alteration of buildings is contemplated, within ten (10) days after such erection or alteration is completed to the point of availability for occupancy and use. A record of all certificates shall be kept on file in the office of the Building Commissioner and copies shall be furnished on request to any person having a proprietary or tenancy interest in the building affected. There shall be no

fee charged for the original certificate. A fee of fifty cents ($0.50) for each copy of the original shall be charged by the Building Commissioner. No permit for the erection of any building shall be issued before application has been made for a certificate of occupancy. No building or premises may be occupied until such certificate shall have been issued. (1994 C., § 26.96.030; Ord. No. 59979, § 25(part), 1986.)

26.96.040 Front yard survey.

The fee for a survey necessary to establish the front yard line requirements of any use districts, as set forth in Chapter 26.98, shall be paid prior to the issuance of any certificate of occupancy or building permit. (1994 C., § 26.96.040; Ord. No. 69084, § 2, 2-13-2012; Ord. No. 59979, § 25(part), 1986.)

Chapter 26.98

FEE SCHEDULE

Sections:

26.98.010 Schedule enumerated.

26.98.010 Schedule enumerated.

The following non-refundable fees shall be paid by the requesting party prior to any action being taken by the City in connection with zoning services:

Service	Fee
Front yard survey	$25.00
Rezoning petition	$250.00
Appeal to the Board of Adjustment	$200.00
Conditional use	$50.00
PUD (planned unit development)	$500.00*
CUP (community unit plan)	$500.00*
Amendment of a CUP	$300.00
SPD (signage plan district)	$300.00
Home occupancy waiver	$50.00
Zoning letters	$25.00
Signature verification of plat and petitions	$475.00
Incidental business waivers	$20.00
Form-based district application fee	$500.00
*$500.00 for the first acre, $250.00 for each additional acre or fraction thereof.	

(1994 C., § 26.98.010; Ord. No. 70150, § 2, 11-24-2015; Ord. No. 69199, § 9, 7-18-2012; Ord. No. 69084, § 3, 2-13-2012)

Chapter 26.100

VIOLATIONS

City Counselor Ops.: 8777

Sections:

26.100.010 Penalty for violations.
26.100.020 Civil remedies.
26.100.030 Revocation of conditional use permit.
26.100.040 Revocation of variance.

26.100.010 Penalty for violations.

The owner or general agent of a building or premises where a violation of any provision of the Zoning Code has been committed or shall exist, or the lessee or tenant of an entire building or entire premises where such violation has been committed or shall exist, or the owner, general agent, lessee or tenant of any part of the building or premises in which such violation has been committed or shall exist, or the general agent, architect, builder, contractor or any other person who commits, takes part in or assists in any such violation or who maintains any building or premises, in which any such violation shall exist shall be guilty of an infraction and punished pursuant to the general penalty provisions of Chapter 1.12 of the Revised Code of the City of St. Louis. (1994 C., § 26.100.010; Ord. No. 70555, § 4, 6-17-2017; Ord. No. 59979, § 26(part), 1986.)

Cases:

Circuit court has power in certiorari proceeding to order individual to vacate illegal residence and punish for contempt disobedience of such order, *Hernreich v. Quinn,* 168 S.W. 2d 1054 (1943).

Where an ordinance is unconstitutional, no one can be punished for having refused obedience to it before decision was made. *City of St. Louis v. Polar Wave Ice and Fuel Co.,* 296 S.W. 993 (1927).

McQuillin:

25.335 et seq. Prosecution on proceeding for zoning violations.

26.100.020 Civil remedies.

In addition to the above remedies, the City Counselor may file an action to restrain any violation of the Zoning Code. Any person owning property in any district where his rights may be affected or invaded by a violation of the terms of the Zoning Code may bring suit in any court of competent jurisdiction and obtain such remedies as may be available at law or in equity to protect his rights. (1994 C., § 26.100.020; Ord. No. 59979, § 26(part), 1986.)

26.100.030 Revocation of conditional use permit.

A. Any use which constitutes an enlargement, alteration or extension in the permitted use of a building,

structure or premises for which a conditional use permit has been granted, or any permitted use of a building, structure or premises for which a conditional use permit with conditions has been granted and said conditions are not complied with shall be a violation of the Zoning Code.

B. Upon notice from the code official that a use which may constitute an enlargement, alteration or extension in the permitted use of a building, structure or premises for which a conditional use permit has been granted has occurred, or that a permitted use of a building, structure or premises for which a conditional use permit with conditions has been granted and said conditions are not complied with, the Board of Public Service shall notify the owner of said building, structure or premises, and the party to whom said permit was granted, of a hearing to be held within 30 days of the date of said notice, to determine whether the use is an enlargement, alteration or extension in the permitted use for which a conditional use permit has been granted, or to determine whether the use for which a conditional use permit with conditions has been granted is in compliance with said conditions.

C. If it is found by the Board of Public Service that an enlargement, alteration or extension in the permitted use of the building, structure or premises for which a conditional use permit has been granted has occurred, or that the permitted use of the building, structure or premises for which a conditional use permit with conditions has been granted and said conditions have not been complied with, the conditional use permit or conditional use permit with conditions shall be revoked.

D. No new conditional use permit or conditional use permit with conditions shall be issued for the subject property for a period of one year from the date of revocation. (1994 C., § 26.100.030; Ord. No. 64051, § 1, 1997.)

26.100.040 Revocation of variance.

A. Any use which constitutes an enlargement, alteration or extension in the permitted use of a building, structure or premises for which a variance has been granted, or any permitted use of a building, structure or premises for which a variance with conditions has been granted and said conditions are not complied with shall be a violation of the Zoning Code.

B. Upon notice from the code official that a use which may constitute an enlargement, alteration or extension in the permitted use of a building, structure or premises for which a variance has been granted has occurred, or that a permitted use of a building, structure or premises for which a variance with conditions has been granted and said conditions are not complied with, the Board of Adjustment shall notify the owner of said building, structure or premises, and the party to whom said variance was granted, of a hearing to be held within 30 days of the date of said notice, to determine whether the use is an enlargement, alteration or extension in the permitted use for which a variance has been granted, or to determine whether the use for which a variance with conditions has been granted is in compliance with said conditions.

C. If it is found by the Board of Adjustment that an enlargement, alteration or extension in the permitted use of the building, structure or premises for which a variance has been granted has occurred, or that the permitted use of the building, structure or premises for which a variance with conditions has been granted and said conditions have not been complied with, the variance or variance with conditions shall be revoked.

D. No new variance or variance with conditions shall be issued for the subject property for a period of one year from the date of revocation. (1994 C., § 26.100.040; Ord. No. 64051, § 2, 1997.)

TABLES

I. 1960 Code Cross-Reference Table
II. 1948 Code Cross-Reference Table
III. Ordinance List and Disposition Table

I. 1960 CODE CROSS-REFERENCE TABLE

This table, which provides users with the current dispositions of the sections of the 1960 Revised Code of the City of St. Louis, can be found online at:

https://library.municode.com/mo/st._louis/codes/code_of_ordinances?nodeId=TA_I1960COCRFETA.

II. 1948 CODE CROSS-REFERENCE TABLE

This table, which provides users with the current dispositions of the sections of the 1948 Revised Code of the City of St. Louis, can be found online at:

https://library.municode.com/mo/st._louis/codes/code_of_ordinances?nodeId=TA_II1948COCRFETA

[The next page is 203]

III. ORDINANCE LIST AND DISPOSITION TABLE

Beginning with July 2009, this table will be replaced with the "Code Comparative Table and Disposition List."

44681	Bond election, proposition 2 (Special)
44682	Repeals Ord. 38046 (Repealer)
44683	Repeals Ord. 27267 (Repealer)
44684	Establishes Frederick St. (Special)
44685	Repeats Ord. 44213 (Repealer)
44686	Sale of property, Block 5721 (Special)
44687	Parking, Vandevent Avenue (Not codified)
44688	Parking, Forest Park Boulevard (Not codified)
44689	Sale of property (Special)
44690	Sale of property (Special)
44691	Sale of property (Special)
44692	Sale of property (Special)
44693	Sale of property (Special)
44694	Sale of property (Special)
44695	Sale of property (Special)
44696	Sale of property (Special)
44697	Sale of property (Special)
44698	Adds § 25-K to Ord. 43585, traffic-control intersection (Not codified)
44699	Adds § 25-M to Ord. 43585, traffic-control intersection (Not codified)
44700	Adds § 25-L to Ord. 43585, traffic-control intersection (Not codified)
44701	School stop (Repealed by 51037)
44702	Repeats Ord. 44318 (Repealer)
44703	Parking, Second Street; repeals Ord. 44039 (Not codified)
44704	Parking, Hereford Street (Repealed by 45379)
44705	Parking, Daggett Ave. (Not codified)
44706	Parking, Wilson Ave. (Repealed by 48470)
44707	Parking, Shaw Ave. (Repealed by 48413)
44708	Repeals Ord. 43385 (Repealer)
44709	Parking, Semple Ave. (Not codified)
44710	Parking, Goodfellow Boulevard (Repealed by 46525)
44711	Vacates alley (Special)
44712	Vacates walks (Special)
44713	Vacates Robert Ave. (Special)
44714	Vacates alley (Special)
44715	Vacates Bernard Street, alleys (Special)
44716	Vacates alley (Special)
44717	Establishes alley (Special)
44718	Vacates Gibbons Street (Special)
44719	Appropriation for land tract (Special)
44720	Stop intersection, Louisiana Ave. and Keokuk Street (Not codified)
44721	Stop intersection, Morganford Road and Bates Street (Not codified)
44722	Stop intersection, McArthur Ave. and Brennan Ave. (Not codified)
44723	Stop intersection, Linton Ave. and Emily Street (Repealed by 49082)
44724	Appropriation for land tract (Special)
44725	Appropriation for land tract (Special)
44726	Appropriation for land tract (Special)
44727	Appropriation for land tract (Special)
44728	Parking, Rosalie Street (Not codified)
44729	School stop, Allemania street and Gravois Ave. (Repealed by 50781)
44730	Designates Adelaide M. Windsor Park (22.44.090)
44731	Fixes prisoner board fee (16.12.030)
44732	Refuse collection, office of commissioner and repeals §§ 2304—2314 of 1936 Code (11.02 Parts I and II)
44733	School structures, amends § 83-5 of Ord. 43114, building code (Repealed by 50502)
44734	Parking, Hodiamont Ave. (Not codified)
44735	Parking, Tower Grove Ave. (Not codified)
44736	Sale of property (Special)
44737	Amends Art. 2, Ch. 8, 1936 Code, § 166, industrial districts (26.60.020)

44738	Amends Art. 2, Ch. 8, 1936 Code, § 165, commercial district (26.48.020)
44739	Vacates several streets and alleys (Special)
44740	Private dumps, repeals Art. 4, Ch. 32, 1936 Code (11.02 Part VI)
44741	Changes name of Kobermann Ave. to Schroeder Place (Special)
44742	Authorizes purchase of land tract (Special)
44743	Authorizes grant agreement for federal aid to airport (Special)
44744	Appropriation for city housing and rent commission (Special)
44745	Authorizes installation of electrical apparatus to Commercial Barge Lines, Inc. (Special)
44746	Authorizes installation of electrical apparatus to Phoebe Davis (Special)
44747	Designates Bowen Street and Dewey Ave. one-way streets (Not codified)
44748	Authorizes land lease to Grossman Iron and Steel Co. (Special)
44749	Authorizes land lease to Grossman Iron and Steel Co. (Special)
44750	Regulates traffic at Vandeventer and McPherson Aves. (Not codified)
44751	Vacates strip of public airport (Special)
44752	Drinking fountains (11.10.120)
44753	Amends Ord. 43114, § 26-7, area restrictions and exposures (Repealed by 50502)
44754	Amends Ord. 43114, adds § 27-6-(7), alterations and additions to present frame structures (Repealed by 50502)
44755	Amends Ord. 43114, § 25-9, fire resistive ceilings (Repealed by 50502)
44756	Amends Ord. 43114, § 2, fees (Repealed by 50502)
44757	Amends Ord. 43114, § 10-2, continuance of occupancy of existing structures (Repealed by 50502)
44758	Sale of property (Special)
44759	Sale of property (Special)
44760	Sale of property (Special)
44761	Sale of property (Special)
44762	Sale of property (Special)
44763	Sale of property (Special)
44764	Sale of property (Special)
44765	Sale of property (Special)
44766	Sale of property (Special)
44767	Sale of property (Special)
44768	Sale of property (Special)
44769	Sale of property (Special)
44770	Sale of property (Repealed by 47536)
44771	Sale of property (Special)
44772	Sale of property (Special)
44773	Sale of property (Special)
44774	Sale of property (Special)
44775	Sale of property (Special)
44776	Sale of property (Special)
44777	Sale of property (Special)
44778	Sale of property (Special)
44779	Establishes Baden SID 11 (Special)
44780	Sale of property (Special)
44781	Sale of property (Special)
44782	Sale of property (Special)
44783	Sale of property (Special)
44784	Sale of property (Special)
44785	Sale of property (Special)
44786	Sale of property (Special)
44787	Electric storage battery cases (15.150.010—15.150.100)
44788	Schools of nursing, establishes municipal nurses' advisory board (12.52.100—12.52.190)
44789	Sale of property (Special)
44790	Vacates alley (Special)
44791	Vacates alley (Special)
44792	Vacates alley (Special)
44793	Vacates alley (Special)
44794	Detaining minors (15.112.010)
44795	Appropriation for fire department personnel (Special)

44796	Amends Ord. 44361, §§ 8 and 10, appointment, salary and duties of Board of Aldermen employees (Repealed by 45486)
44797	Amends Ord. 44341, § 1406B, cigarette sales occupation tax (8.10.050)
44798	Amends Ord. 44344, § 1591, business licenses (8.100.040—8.100.060)
44799	Amends Ord. 44363, § 201, duties and salary of coroner's employees (Repealed by 45598)
44800	Comprehensive compensation plan, repeals Ord. 44340 (4.10)
44801	Stop intersection, Meramec Street and Nebraska Ave. (Not codified)
44802	School stop, Prairie Ave. and Von Phul Street (Not codified)
44803	One-way alley, block 1022W (Not codified)
44804	School stop, Stoddard Street and Elliott Ave. (Not codified)
44805	Stop intersection, Goodfellow and Etzel Ave. (Not codified)
44806	Parking, south side of Sidney Street (Not codified)
44807	Authorizes letting contract for street lighting (Special)
44808	Amends § 3897, 1936 Code, milk inspection fees (Repealed by 55384)
44809	Stop intersection, Berthold and Sanford Aves. (Not codified)
44810	Stop intersection, Brannon Ave. and Arsenal Street (Not codified)
44811	Stop intersection, Reber Place and Hampton Ave. (Not codified)
44812	Stop intersection, Southwest and Hampton Ave. (Not codified)
44813	Stop intersections, Clarendon Ave. with Maple Ave., Vernon Ave., Raymond Ave. and Cabanne Ave. (Not codified)
44814	Parking, McPherson and Euclid Aves. (Repealed by 46525 and 48333)
44815	Repeals Ord. 44555 (Repealer)
44816	Appropriation for court costs (Special)
44817	Sale of property (Special)
44818	Provides for elections for freeholders to draft city charter (Special)
44819	Amends §§ 196, 198 and 201, 1936 Code, duties and salaries of coroner employees (Repealed by 45618)
44820	Amends § 5356, 1936 Code, appointment and salaries of recorder of deeds employees (Repealed by 45598)
44821	Amends § 1134, 1936 Code, city treasurer and employees (4.26.010, 4.26.020)
44822	Provides for election to amend city charter (Charter Art. IV, Art. VII)
44823	Amends Art. 2, Ch. 8, extends residential district (Failed)
44824	Sale of property (Special)
44825	Sale of property (Special)
44826	Sale of property (Special)
44827	Sale of property (Special)
44828	Sale of property (Special)
44829	Sale of property (Special)
44830	Provides for bond election (Special)
44831	Amends Ord. 43629, § 1, sheriff employee salaries (4.36)
44832	Stop intersection, Alabama and Wilmington Aves. (Not codified)
44833	Parking, Lucas Ave. (Not codified)
44834	Amends Ord. 43585, adds § 25-C, traffic-control signals (Not codified)
44835	Amends Ord. 44549, adds § 3586-A, parking regulations (Not codified)
44836	Parking, Lucas Ave. (Not codified)
44837	Parking, Union Boulevard (Not codified)
44838	Parking, Parker Ave. (Not codified)
44839	Parking, Palm Street (Not codified)
44840	Amends Ord. 44248, § 1, repeals § 3, parking on Beck Ave. (Not codified)
44841	Parking, Eighth Street and Mullanphy Street (Not codified)
44842	Parking, Virginia Ave. (Not codified)
44843	Stop intersection, Eiler Street and Louisiana Street (Not codified)

44844 School stop, Alaska Ave., Eiler Street, Eichelberger Street and Louisiana Ave. (Not codified)

44845 Stop intersection, Maffitt Ave. and Union Boulevard (Not codified)

44846 Parking, Palm Street (Repealed by 45616)

44847 Parking, McCausland Ave. (Not codified)

44848 Parking, Frisco Ave. (Not codified)

44849 Parking, Arlington Ave. (Not codified)

44850 Parking, Tenth Street (Not codified)

44851 Parking, Gravois Ave. (Not codified)

44852 School stop, Brannon Ave. and Fyler Ave. (Repealed by 46373)

44853 School stop, Garesche Ave. and Riverview Boulevard (Not codified)

44854 Parking, Thirteenth Street (Not codified)

44855 Parking, St. Charles Street (Not codified)

44856 Parking, Ashland Ave. (Not codified)

44857 Parking, Bircher Boulevard (Not codified)

44858 Parking, Nagel Ave. (Not codified)

44859 Parking, Virginia Ave. (Repealed by 50289)

44860 Stop intersection, Lemp Ave. and Arsenal Street (Not codified)

44861 Parking, Carr Street (Not codified)

44862 School stop, California Ave. and Osage Street (Not codified)

44863 School stop, Dakota Street and Broadway (Repealed by 49646)

44864 School stop, Bamberger Ave. and Chippewa Street (Not codified)

44865 Establishes municipally owned garbage site (Special)

44866 Appropriation for grade damages (Special)

44867 Appropriation for current expenses (Special)

44868 Appropriation for folding chairs and drinking fountains (Special)

44869 Vacates alley (Special)

44870 Vacates portion of Warren Street (Special)

44871 Establishes alley (Special)

44872 Authorizes installation of electrical apparatus to John I. Hay Co. (Special)

44873 Repeals Ord. 44200 § 1 (Repealer)

44874 Stop intersection, Walton Ave. and Page Boulevard (Not codified)

44875 Vacates alley (Special)

44876 Changes name of Kingwood Ave. to Kingwood Drive, Livengood Drive to Kingwood Drive, North Villanova Drive to Eichelberger Drive (Special)

44877 Vacates alley (Special)

44878 Amends Ord. 44800, § 2, monthly rates for compensation (4.10)

44879 Amends §§ 1399 and 1399a, 1936 Code, inventory tax (8.56.100, 8.56.110, 8.56.190)

44880 Amends §§ 1260 and 1262, 1936 Code, barbershop closing (8.22.040)

44881 Amends § 2212, 1936 Code, obstruction of street crossings by railroads (Repealed by 46687)

44882 Vacates Cardinal Ave. (Special)

44883 Opens Poepping Street (Special)

44884 Vacates portion of Atlantic Street and alley in block 2211 (Special)

44885 Vacates portions of Kraft Street, Plateau Ave., Wyatt Place and alley in block 5899 (Special)

44886 Adopts 1948 Code (Not codified)

44887 Salaries of permanent condemnation commission (Repealed by 47895)

44888 Fixes salary of comptroller (4.10)

44889 Stop intersection, Pernod Ave. and Sulphur Ave. (Not codified)

44890 Stop intersection, Lansdowne and Childress Aves. (Not codified)

44891 Amends Art. 2, Ch. 8, 1936 Code, extends commercial district (Special)

44892 Parking, Twentieth Street (Repealed by 46525 and 48333)

44893	Parking, Broadway (Repealed by 46525)
44894	Amends Ord. 43114, § 26-3, class V-type I, building code (Repealed by 50502)
44895	Parking, Papin Street and Bartle Ave. (Not codified)
44896	School stop, Wisconsin Ave. and Cherokee Street (Repealed by 51242)
44897	Parking, Sarah Street and Olive Street (Repealed by 46525)
44898	Amends Ord. 43114, § 34, steel and metal construction (Repealed by 50502)
44899	Parking, Washington Boulevard, repeals Ord. 44183 (Not codified)
44900	Designates Shenandoah Ave., Ninth Street major streets (Not codified)
44901	Amends Art. 2, Ch. 8, extends commercial district (Special)
44902	Appropriation for damages (Special)
44903	Appropriation for damages (Special)
44904	Appropriation for damages (Special)
44905	Appropriation for current expenses (Special)
44906	Appropriation for damages (Special)
44907	Appropriation for damages (Special)
44908	Appropriation for damages (Special)
44909	Provides for lease of portion of block 2142 and right-of-way (Special)
44910	Sale of property (Special)
44911	Parking, Broadway and Halls Ferry Road (Repealed by 46525 and 48333)
44912	Parking, Baden Ave.
44913	Sale of property (Special)
44914	Sale of property (Special)
44915	Sale of property (Special)
44916	Sale of property (Special)
44917	Sale of property (Special)
44918	Sale of property (Special)
44919	Sale of property (Special)
44920	Parking, Broadway and Nagel Ave.
44921	School stop, Thirteenth and Wyoming Streets (Not codified)
44922	Amends Ord. 37406, § 9, railroad use charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)
44923	Stop intersection, Louisiana Ave. and Meramec Street (Not codified)
44924	Stop intersection, Bremen Ave. and Twenty-fifth Street (Not codified)
44925	Parking, Thirty-ninth Street (Not codified)
44926	Amends Ord. 44539, § 2, bedroom rental permits, adds § 18, penalty (Repealed by 45195)
44927	Permits for roominghouses, repeals Ord. 44356 (Repealed by 45195)
44928	Authorizes letting contract to widen Holly Hills Ave. (Special)
44929	Authorizes contract for discharge of storm water and sanitary sewage into city system (Special)
44930	Appropriation for damages (Special)
44931	Amends Ord. 44486 caption, repeals § 1, site for sewer pumping station (Special)
44932	Appropriation for damages (Special)
44933	Appropriation for damages (Special)
44934	Appropriation for damages (Special)
44935	Sale of property (Special)
44936	Alley improvement (Special)
44937	Alley improvement (Special)
44938	Amends Ord. 44798, adds § 2, circus (8.100.080)
44939	Sale of property (Special)
44940	Sale of property (Special)
44941	Sale of property (Special)
44942	Sale of property (Special)
44943	Sale of property (Special)
44944	Sale of property (Special)
44945	Sale of property (Special)
44946	Sale of property (Special)
44947	Sale of property (Special)
44948	Appropriation for tax rebate (Special)
44949	Sale of property (Special)

44950 Amends Art. 2, Ch. 8, extends commercial district (Special)

44951 Stop intersection, Columbia Ave. and Sulphur Ave. (Not codified)

44952 Stop intersection, Lami Street and Ninth Street (Not codified)

44953 Amends Ord. 43585, § 25-P, traffic-control signals (Not codified)

44954 Parking, Jefferson Ave. (Not codified)

44955 Parking, Twenty-Second Street (Repealed by 46525)

44956 Parking, Goodfellow Boulevard and Riverview Boulevard (Not codified)

44957 Parking, Donovan Ave. (Not codified)

44958 Parking, Southwest Ave. (Not codified)

44959 Stop intersection, January Ave. and Southwest Ave. (Not codified)

44960 Parking, Kingshighway and Memorial Boulevard (Not codified)

44961 Parking, McCausland Ave., Clayton Ave. and Forest Ave. (Repeated by 46525)

44962 School stop, Lake Ave. and Waterman Boulevard (Not codified)

44963 Parking, Washington Ave. (Not codified)

44964 Parking, Russell Ave. (Not codified)

44965 School stop, Lemp Ave. and Cherokee Street (Not codified)

44966 Designates Bancroft Ave. one-way street (Not codified)

44967 Parking, North Market (Not codified)

44968 Amends Art. 2, Ch. 8, 1936 Code, § 175, use, height and area exceptions (Repealed by 45309)

44969 Establishes antislum commission (Repealed by 49731)

44970 Vacates alley (Special)

44971 Appropriates relief for Sidney M. Gallant (Special)

44972 Provides name change of Hodiamont Ave. to Dardenne Drive (Special)

44973 Vacates walk (Special)

44974 Vacates DeKalb Street (Special)

44975 Establishes Arendes Drive (Special)

44976 Appropriates relief for Arthur F. D. Kalbfell and Marie K. Wimberley (Special)

44977 Vacates LaSalle Street (Special)

44978 Provides lease of land, repeals Ord. 42122 (Special)

44979 Vacates walk (Special)

44980 Vacates alley (Special)

44981 Sale of property (Special)

44982 Appropriations for 1949-50 (Special)

44983 Establishes property tax for 1949 (5.26.010—5.26.050)

44984 Amends Art. 2, Ch. 8, 1936 Code, extends "C" height and area district (Special)

44985 Parking, Vista Ave. (Repealed by 45238)

44986 Stop intersection, Pemod Ave. and Sulphur Ave. (Repealed by 45375)

44987 Fire lane on Ellendale Ave., defines fire lane (Not codified)

44988 Parking, Frisco Ave. (Not codified)

44989 Stop intersection, Clifton Ave. and Marmaduke Ave. (Not codified)

44990 School stop, Grand Boulevard and Cottage Ave. (Not codified)

44991 School stop, Hogan Street and North Market Street (Not codified)

44992 School stops, Alice Ave. and Carter Ave., Carter Ave. and Clay Ave., Carter Ave. and Harris Ave., Fair Ave. and Rosalie Street, Fair Ave. and West Florissant Ave., Green Lea Place and Harris Ave., Penrose Street and Warne Ave. (Not codified)

44993 Fire lane, Bremen Ave. (Not codified)

44994 Fire lane, East Gano Ave. (Not codified)

44995 Fire lane, Destrehan Street (Not codified)

44996 Amends Art. 2, Ch. 8, 1936 Code, extends industrial district (Special)

44997 Amends Ord. 43940, § 2, magistrate court employees salaries (4.24.010)

44998 Authorizes Bryan Mullanphy Emigrant and Travelers Relief Fund board of commissioners to sell land parcels (Repealed by 53755)

44999 Limits live load capacity on DeGiverville Ave. (Not codified)

45000 Appropriation for damages (Special)

45001 Sale of property (Special)

45002 Appropriation for damages (Special)

45003 Regulates control, custody and price of copies of 1948 Code (Special)

45004 Sale of property (Special)

45005 Authorizes installation of electrical apparatus to Anheuser-Busch, Inc. (Special)

45006 Amends Art. 2, Ch. 8, 1936 Code (Part 3, 1948 Code), extends multiple dwelling district and "C" height and area district (Special)

45007 Malodorant agent in all odorless gases (11.12)

45008 Grades for alleys (Special)

45009 Authorizes installation of electrical apparatus to Fred Varney and Company (St. Louis Yacht Harbor) (Special)

45010 Authorizes letting contract for parking lot construction at city hospital No. 1 (Special)

45011 Sale of property (Special)

45012 Sale of property (Special)

45013 Permits for roominghouses (Repealed by 45195)

45014 Authorizes letting contracts for improvement of sanitary conditions along River Des Peres drainage works (Special)

45015 Sale of property (Special)

45016 Authorizes magistrate court to appoint employees, salaries (4.24)

45017 Amends Art. 2, Ch. 8, 1936 Code (Part 3, 1948 Code), extends industrial district (Special)

45018 Vacates Soper Street, alleys in blocks 2974 and 2975 (Special)

45019 Amends Ord. 44870, § 2, city's rights on vacated Warren Street (Special)

45020 Vacates Mott Street (Special)

45021 Establishes traffic division in department of streets and sewers (Repealed by 57831)

45022 Authorizes installation of electrical apparatus to Massman Construction Co. (Special)

45023 Parking, Mallinckrodt Street (Not codified)

45024 Parking, Henrietta Street (Not codified)

45025 Parking, Manchester Ave. (Not codified)

45026 School stop, West Florissant Ave. and Linton Ave. (Not codified)

45027 Parking, Destrehan Street (Not codified)

45028 Parking, Newstead Ave. (Repealed by 46525)

45029 Repeals § 3593, 1936 Code (Repealer)

45030 Parking, Pestalozzi Street (Not codified)

45031 Designates one-way alley (Not codified)

45032 Repeals § 2, Ord. 42490 (Repealer)

45033 Designates one-way alley (Not codified)

45034 Parking, University Street (Not codified)

45035 Repeals §§ 6, 7 and 10, Ord. 42566 (Repealer)

45036 Parking, Shreve Ave. (Repealed by 50193 and 50819)

45037 Parking, Red Bud Ave. (Repealed by 50423)

45038 Stop intersection, Pine Street and Twenty-second Street (Repealed by 45329)

45039 Parking, Second Street, repeals Ord. 42273 (Not codified)

45040 Repeals § 1815, Ch. 69, 1948 Code (Repealer)

45041 School stops, Fairview Ave. and Grace Ave., Fairview Ave. and Giles Ave., Gustine Ave. and McDonald Ave., and McDonald Ave. and Spring Ave. (Not codified)

45042 Parking, Macklind Ave. (Repealed by 45162)

45043 Stop intersection, Waldemar Ave. and Manchester Ave. (Not codified)

45044 Parking, Kingshighway Memorial Boulevard (Repealed by 46525)

45045 Parking, Darby Street, repeals § 168, Ch. 69, 1948 Code (Repealed by 45094)

45046 Repeals § 68, Ch. 69, 1948 Code (Repealer)

45047 Parking, St. Ange Ave. (Repealed by 48164)

45048 Parking, Broadway (Repealed by 46525)

45049 Amends § 1, Ord. 44856, parking, Ashland Ave. (Not codified)

45050 Amends §§ 66 and 71, Ch. 69, 1948 Code, parking, Abner Place and Arlington Ave. (Not codified)

45051 Amends § 120, Ch. 69, 1948 Code, parking, Williams Place (Not codified)

45052 Parking, St. Louis Ave. (Repealed by 46525 and 48333)

45053 Parking, Manchester Ave. (Repealed by 46525)

45054 Designates Vemon Ave. and Maple Ave. one-way streets (Not codified)

45055 Establishes alley (Special)

45056 Stop intersection, Carrie Ave. and Prescott Ave. (Not codified)

45057 Stop intersection, Lansdowne Ave. and Donovan Ave. (Not codified)

45058 Stop intersection, Devonshire Ave. and Donovan Ave. (Not codified)

45059 Designates Academy Ave. major street (Not codified)

45060 Stop intersection, Mimika Ave. and Garesche Ave. (Repealed by 48780)

45061 Stop intersection, Darby Ave. and Grimshaw Ave. (Repealed by 48783)

45062 Stop intersection, Theodore Ave. and Wren Ave. (Repealed by 48784)

45063 Stop intersections, Etzel Ave. and Clara Ave., Julian Ave. and Clara Ave. (Not codified)

45064 Stop intersection, Washington Boulevard and Rosedale Ave. (Not codified)

45065 Traffic-control signal and parking, intersection of Delor Street, Gravois Ave. and Morgan Ford Road (Repealed by 45320)

45066 Stop intersection, Compton Ave. and Bell Ave. (Not codified)

45067 Stop intersection, Park Ave. and St. Ange Ave. (Not codified)

45068 Parking, Hampton Ave. (Not codified)

45069 Stop intersection, Third Street and Sidney Street (Not codified)

45070 Stop intersection, Ohio Ave. and Wyoming Street (Not codified)

45071 Stop intersection, Brannon Ave. and Nottingham Ave. (Not codified)

45072 Stop intersection, Delmar Boulevard and Leffingwell Ave., establishes school stop same intersection (Not codified)

45073 Stop intersection, Whittier Street and Cook Ave. (Not codified)

45074 Stop intersection, Courtois Street, Ivory Ave. and Virginia Ave. (Not codified)

45075 Stop intersection, Wyoming Street and Arkansas Ave. (Not codified)

45076 Vacates alley (Special)

45077 Sale of property (Special)

45078 Sale of property (Special)

45079 Amends § 104, Ch. 69, 1948 Code, adds § 104.1, parking, Natural Bridge Ave. (Not codified)

45080 Approves application for loan for St. Louis Housing Authority (Special)

45081 Approves waiver of removal provisions in contracts between Federal Public Housing Authority and city (Special)

45082 Authorizes letting contracts for improvement of Riverview Drive (Special)

45083 Parking, Twentieth Street and Pine Street, restricts provisions of §§ 292 and 699, Ch. 69, 1948 Code; repeals § 788, Ch. 69, 1948 Code (Not codified)

45084 School stop, Papin Street and Twenty-first Street (Not codified)

45085 School stop, Howard Street and Leffingwell Ave. (Repealed by 50992)

45086 School stop, Glasgow Ave. and Howard Street (Not codified)

45087 Parking, Harris Ave. (Not codified)

45088 Playground stop, Lansdowne Ave. and Macklind Ave. (Not codified)

45089 School stop, Goodfellow Boulevard and Lalite Ave. (Repealed by 51756)

45090 Designates Rauschenbach Ave. and Twenty-First Street one-way streets (Not codified)

45091 Parking, Seventh Street (Not codified)

45092 School stop, Louisiana Ave. and Sidney Street (Not codified)

45093 Parking, McCausland Ave. (Not codified)

45094 Repeals Ord. 45045 (Repealer)

45095 Authorizes St. Louis Housing Authority to take property by eminent domain for rehabilitation of slums (Repealed by 45649)

45096 Parking, Arsenal Street, repeals § 72, Ch. 69, 1948 Code (Repealed by 45201)

45697 Vacates Warren Street (Special)

45098 Stop intersection, Sarah Street and Papin Street (Not codified)

45099 Stop intersection, Sarah and West Pine Boulevard (Not codified)

45100 Stop intersection, Spring Ave. and Lindell Boulevard (Not codified)

45101 Parking, Newstead Ave. (Not codified)

45102 School stop, Watson Road and Mardel Ave. (Not codified)

45103 Designates Jamison Ave. major street (Repealed by 49796)

45104 Appropriation for damages (Special)

45105 Parking, Elward Street (Not codified)

45106 Establishes alley (Special)

45107 Vacates alley (Special)

45108 Parking, Shaw Ave. (Repealed by 46525)

45109 Designates Hebert Street and Ashland Ave. one-way streets (Not codified)

45110 Repeals § 90, Ch. 69, 1948 Code (Repealer)

45111 Repeals §§ 175 and 254, Ch. 69, 1948 Code (Repealer)

45112 Parking, Biddle Street, O'Fallon Street and Seventeenth Street (Not codified)

45113 Amends § 79, Ch. 64, 1948 Code, signs in areas to be vacated (20.14.080)

45114 Amends § 92, Ch. 23, 1948 Code, compensation for collector of revenue employees (4.44)

45115 Amends § 8, Ch. 47, 1948 Code, laborers (6.04.230)

45116 Amends § 2, Ch. 5, 1948 Code, penalty (Not codified)

45117 Adds § 91, Ch. 65, 1948 Code, penalty (Repealed by 58795)

45118 Amends § 27, Ch. 58, 1948 Code, penalty (Not codified)

45119 Amends § 24, Ch. 69, 1948 Code, penalty (Not codified)

45120 Adds § 44A, Ch. 42, 1948 Code, penalty (Not codified)

45121 Parking, Carr Street (Not codified)

45122 Parking, Oregon Ave. (Not codified)

45123 Appropriation for project UI-892(2) (Special)

45124 Vacates alley (Special)

45125 Amends Art. 2, Ch. 8, 1936 Code, Part 3, 1948 Code, extends industrial district (Special)

45126 Appropriation for survey and report of proposed expressways and existing thoroughfares for future highway planning (Special)

45127 Ratifies action of board of public service empowering its president to execute agreement for reconstruction of westem approach to St. Louis Municipal Bridge (Special)

45128 Authorizes street division to purchase material and labor for repair of concrete bridges and viaducts (Special)

45129 Parking, Market Place (Not codified)

45130 Parking, West Florissant Ave. (Repealed by 46525)

45131 Parking, Broadway (Not codified)

45132 Repeals § 1070, Ch. 69, 1948 Code (Repealer)

45133 Stop intersection, Gratiot Street and Sixth Street (Not codified)

45134 School stop, Taft Ave. and Virginia Ave. (Repealed by 45134)

45135 Parking, Broadway (Repealed by 46525)

45136 Parking, Thurman Ave. (Not codified)

45137 Parking, Magazine Street (Repealed by 48333)

45138 School stop, Marcus Ave. and Cottage Ave. (Not codified)

45139 Parking, Meramec Street (Not codified)

45140 Designates Ellenwood Ave., Neosho Street one-way streets (Repealed by 49153)

45141 School stop, Alberta Street and Hydraulic Ave. (Not codified)

45142 Parking, Penrose Street (Repealed by 49280)

45143 Amends Part 3, 1948 Code, extends commercial district (Special)

45144 Appropriation for damages (Special)

45145 Provides group A-1 or group A-2 occupancy may continue until January 1, 1951 (Repealed by 50502)

45146 Authorizes contract to provide survey and report of proposed expressways and existing thoroughfares, reimbursement by commission (Special)

45147 Amends §§ 2 and 5, Ch. 27, 1948 Code, refuse (11.02 Parts I and II)

45148 Appropriation for damages (Special)

45149 Appropriation for damages (Special)

45150 Appropriation for damages (Special)

45151 Parking, commercial vehicles Natural Bridge Ave. (Not codified)

45152 Changes name of Kingshighway Boulevard to Kingshighway Memorial Boulevard (Special)

45153 Appropriation for damages (Special)

45154 Parking, Semple Ave. (Not codified)

45155 Stop intersection, McCausland Ave. and Dale Ave. (Not codified)

45156 Repeals § 346, Ch. 69, 1948 Code (Repealer)

45157 Repeals § 119, Ch. 69, 1948 Code (Repealer)

45158 Repeals § 1598, Ch. 69, 1948 Code (Repealer)

45159 School stop, Broadway and Gasconade Street (Not codified)

45160 Parking, Papin Street (Not codified)

45161 Parking, Bischoff Ave. (Repealed by 45677)

45162 Repeals Ord. 45042, parking Macklind Ave. (Repealer)

45163 Parking, West Billon Ave. (Not codified)

45164 Authorizes contract for sewage discharge into city sytem (Special)

45165 School stops, Thekla Ave. and Robin Ave., Thekla Ave. and Wren Ave. (Not codified)

45166 Traffic-control signals, Chippewa Street and Watson Road (Not codified)

45167 Establishes alley (Special)

45168 Traffic-control signals, Kingshighway Boulevard and Chouteau Ave. (Not codified)

45169 Traffic-control signals, Lansdowne Ave. and Watson Road (Not codified)

45170 Authorizes contracts for widening St. Charles Street (Special)

45171 Repeals Ord. 44348 (Repealer)

45172 Establishes McRee Ave. (Special)

45173 Vacates alley (Special)

45174 Vacates alley (Special)

45175 Amends § 1, Ord. 43529, establishes Morgan Ford Road (Special)

45176 Amends Part 3, 1948 Code, extends unrestricted district (Special)

45177 Amends § 2, Ord. 44619, appropriation for pipe line (Special)

45178 Amends § 1, Ord. 44612, compensation of clerks and inspectors in office of license collector and cashier (Ch. 4.28)

45179 Amends § 1, Ord. 44833, establishes Poepping Street (Special)

45180 Amends §§ 2 and 4, Ord. 44202, easements for bridge (Special)

45181 Amends § 98, Ch. 23, 1948 Code, employees in treasury division (4.26.010, 4.26.020)

45182 Authorizes cooperation agreement between city and St. Louis Housing Authority (Special)

45183 Amends §§ 1 and 2, Ord. 44946, selling property, blocks 5003 and 5005-W, out lot 92 (Special)

45184 Creates council on human rights (Repealed by 62710)

45185 School stop, Enright Ave. and Culver Way (Not codified)

45186 Parking, Delmar Boulevard (Repealed by 48333)

45187 Parking, Broadway (Repealed by 46525)

45188 Parking, Gratiot Street (Not codified)

45189 Parking, Fourth Street (Repealed by 46525)

45190 Amends § 868, Ch. 69, 1948 Code, Gratiot Street one-way (Not codified)

45191 Fixes fee for prisoner board (16.12.030)

45192 Parking, Chippewa Street (Not codified)

45193 Parking, Farlin Ave., repeals § 544, Ch. 69, 1948 Code (Not codified)

45194 Parking, Plover Ave. (Not codified)

45195 Amends §§ 51 and 66, Ch. 32, 1948 Code, permits for roominghouses, repeals Ords. 44926, 44927 and 45013 (Repealed by 48338)

45196 Authorizes magistrate court to appoint clerk (4.24)

45197 Provides refunding tax overpayments (Special)

45198 Appropriation for refunding tax overpayments (Special)

45199 Authorizes purchase of site for refuse disposal (Special)

45200 Amends § 1, Ord. 44978, leasing land in blocks 3193, 3192 and 3244 (Special)

45201 Repeals Ord. 45096 and § 72, Ch. 69, 1948 Code (Repealer)

45202 Fire lane, Provenchere Place (Not codified)

45203 Authorizes request for money on eliminating slums (Special)

45204 Unlawful to drive vehicle on sidewalk or curb, repeals § 12, Ch. 69, 1948 Code (Repealed by 46687)

45205 Appropriation for council on human relations (Special)

45206 Vacates alley (Special)

45207 Appropriation for board of election commissioners (Special)

45208 Appropriations for current expenses (Special)

45209 Appropriation for damages (Special)

45210 Appropriation for current expense for sanitation section of health division (Special)

45211 Authorizes contract with the Cenacle to discharge sanitary sewage into city system (Special)

45212 Regulates lodging for compensation in residential district, amends § 163-A, Art. 2, § 8, 1936 Code, Part 3, 1948 Code (Repealed by 45309)

45213 Appropriates relief for board of education (Special)

45214 Authorizes contract for surfacing roadway in which street railway tracks have been abandoned (Special)

45215 Authorizes contract for extending airport facilities at Lambert-St. Louis Municipal Airport (Special)

45216 School stop, Allen Ave. and Missouri Ave. (Not codified)

45217 Parking, Vista Ave. and Caroline Street (Repealed by 51091)

45218 Parking, Chouteau Ave., amends § 491, Ch. 69, 1948 Code (Not codified)

45219 Parking, Seventh Boulevard (Repealed by 48333)

45220 Stop intersection, Oakland Ave. and Tamm Ave. (Repealed by 503,70)

45221 Roominghouses in class I, II, III or IV structures (Repealed by 48338)

45222 Stop intersection, Minnesota Ave. and Miami Street (Not codified)

45223 Amends § 475, Part 1, Vol. 2, 1948 Code, Class VI wood frame structures (Repealed by 50502)

45224 Adds § 71, Ch. 26, 1948 Code, restaurants (11.42.240—11.42.250)

45225 Stop intersection, Watson Road and Lansdowne Ave., repeals § 2046, Ch. 69, 1948 Code (Not codified)

45226 Stop intersection, Ecoff Ave. and Manchester Ave.; repeals § 1669, Ch. 69, 1948 Code (Not codified)

45227 Authorizes contracts for development of Vashon Playground (Special)

45228 Authorizes contracts for reconstruction of coagulation and sedimentation basin (Special)

45229 Amends §§ 1, 4, 15, 16, 17 and 20, Ch. 62, 1948 Code, solid fuel and products (8.86.010, 8.86.040, 8.86.060, 8.86.070, 8.86.080, 8.86.110)

45230 Authorizes contracts for improvement of Fourteenth Street (Special)

45231 Vacates LaSalle Street (Special)

45232 Designates Palm Street, Hebert Street and Ashland Ave. one-way streets (Not codified)

45233 Designates Maffitt Ave., Terry Ave. and Roosevelt Ave. one-way streets (Not codified)

45234 Authorizes contract with Village of Norwood Court to discharge sewage into city system (Special)

45235 Unlawful to drive horse-drawn vehicle without pail for watering horses (10.20.130)

45236 Parking, Cass Ave. (Not codified)

45237 Parking, Southwest Ave. (Not codified)

45238 Repeals Ord. 44985 (Repealer)

45239 Sale of property (Special)

45240 Parking, Corcas Street, repeals § 526, Ch. 69, 1948 Code (Not codified)

45241 Stop intersection, Convent Street and Third Street (Not codified)

45242 School stops, Jefferson Ave. and Eads Ave., Jefferson Ave. and Whittemore Place, Jefferson Ave. and Rutger Street (Not codified)

45243 Sale of property (Special)

45244 Authorizes contracts for construction of cut-off (Special)

45245 Parking, Gravois Ave. (Repealed by 50107)

45246 School stop, Utah Street and Arkansas Street (Not codified)

45247 Repeals § 1357, Ch. 69, 1948 Code (Repealer)

45248 Parking, Bremen Ave., Farrar Street, North Twenty-First Street and North Twentieth Street (Not codified)

45249 School stop, Ninth Street and Benton Street (Repealed by 50445)

45250 Stop intersection, Marcus Ave. and St. Louis Ave. (Not codified)

45251 Stop intersection, Devonshire Ave. and Sulphur Ave. (Not codified)

45252 Parking, Daggett Ave. and Boardman Street, repeals §§ 165, 166, 167 and 355, Ch. 69, 1948 Code (Not codified)

45253 No left turn regulations (Repealed by 46687)

45254 Stop intersection, Madison Street and Twenty-Fifth Street (Not codified)

45255 Stop intersection, Cass Ave. and Twenty-Third Street (Not codified)

45256 Parking, Lafayette Ave. (Repealed by 45398)

45257 Stop intersection, Macklind Ave. and Eichelberger Ave. (Not codified)

45258 Sale of property (Special)

45259 Amends §§ 1554, 1555, 1557, Ch. 69, 1948 Code, school stops (Not codified)

45260 Playground stops, various street and highway intersections (Not codified)

45261 Parking, Washington Ave. (Repealed by 46525)

45262 Amends § 2019, Ch. 69, 1948 Code, school stop, Jameton Street, Market Street and Twenty-third Street (Not codified)

45263 Parking, Eleventh Street (Not codified)

45264 Sale of property (Special)

45265 Stop intersection, Oleatha Ave. and Brannon Ave. (Not codified)

45266 Parking, Kingshighway Boulevard (Repealed by 46525)

45267 Authorizes lease of land to Hampton Gardens Apts., Inc. (Special)

45268 Improvement of alleys (Special)

45269 Improvement of alley (Special)

45270 Authorizes agreement with Missouri Pacific Railroad Co. for easement for spur tract (Special)

45271 Vacates alley (Special)

45272 Vacates alley (Special)

45273 Parking, Pine Boulevard (Repealed by 46525)

45274 Parking, Arkansas Ave. (Not codified)

45275 Parking, Union Boulevard (Repealed by 46525)

45276 Vacates alley (Special)

45277 Grade for alley (Special)

45278 Authorizes dedication of strip of ground in block 4548 for sewer right-of-way (Special)

45279 Authorizes contracts for improvement of parks (Special)

45280 Appropriation for damages (Special)

45281 Appropriation for damages (Special)

45282 Appropriation for damages (Special)

45283 Authorizes purchase of land in blocks 5392 and 5393 for park (Special)

45284 Provides for leasing of wharf in block 860 to Mississippi Valley Barge Line Co. (Special)

45285 Amends § 1010, Ch. 69, 1948 Code, designates Tower Grove Ave. major street (Not codified)

45286 Parking, Nebraska Ave. (Repealed by 49593)

45287 Appropriation for damages (Special)

45288 Amends §§ 65 and 66, Ch. 67, 1948 Code, city athletic commission (3.58.010, 3.58.020)

45289 Vacates various streets (Special)

45290 Miniature pony tracks (8.58)

45291 Amends § 104, Ch. 2, 1948 Code, lettering on city vehicles (3.54.010)

45292 Improvement of alley (Special)

45293 Improvement of alley (Special)

45294 Authorizes contract with Ladies of the Sacred Heart to discharge sewage into city system (Special)

45295 Grades for alley (Special)

45296 Authorizes contracts for improvement, unlighted streets (Special)

45297 Appropriation for emergency repairs of North Market Street Dock (Special)

45298 Repeals § 4, Ord. 45112 and § 2, Ord. 45121 (Repealer)

45299 Stop intersection, Carroll Street and Grattan Street (Not codified)

45300 Authorizes contract with Sverdrup & Parcel, Inc., to study feasibility of acquisition, establishment and construction of Parks Metropolitan Airport (Special)

45301 Sale of property (Special)

45302 Appropriation for opening of Bischoff Ave. (Special)

45303 Stop intersection, Aubert Ave. and Fountain Ave. (Not codified)

45304 Church stops, various street and highway intersections, defined and regulated (Not codified)

45305 Parking, Forest Park Ave. (Repealed by 45799)

45306 Parking, Laclede Ave. (Repealed by 46525 and 48333)

45307 Parking meters and establishes parking meter commission, authorizes letting contract (Repealed by 48484)

45308 Amends § 885, Part 1, Vol. 2, 1948 Code, glass block construction (Repealed by 50502)

45309 Comprehensive zoning ordinance, repeals §§ 3 through 5 and, §§ 7 through 28, Part 3, 1948 Code, renumbers § 6 to § 7, adds §§ 3 through 6 and §§ 8 through 28 (Title 26)

45310 Authorizes contract for improvement, Jamieson Ave. (Special)

45311 Authorizes contract for improvement, Cherokee Street (Special)

45312 Improvement of alleys (Special)

45313 Improvement of alleys (Special)

45314 Authorizes contract for repair of field house in Forest Park (Special)

45315 Amends § 1950, Part 1, Vol. 2, 1948 Code, garages (Repealed by 50502)

45316 Amends § 1481, Part 1, Vol. 2, 1948 Code, slow burning plastics for signs (Repealed by 50502)

45317 Amends § 467, Part 1, Vol. 2, 1948 Code, Class VI wood frame structures (Repealed by 50502)

45318 Repeals §§ 904, 905, 906 and 907, Part 1, Vol. 2, 1948 Code; adds §§ 904, 905 and 906, masonry veneer for wood frame structures (Repealed by 50502)

45319 Amends §§ 1, 2, Ord. 45065, traffic signals, Delor Street, Gravois Ave. and Morganford Road (Not codified)

45320 Repeals Ord. 45065 (Repealer)

45321 Amends § 454, Part 1, Vol. 2, 1948 Code, stairways (Repealed by 50502)

45322 Amends §§ 1491 and 1492, Part 1, Vol. 2, 1948 Code, signs (Repealed by 50502)

45323 Amends Part 3, Vol. 2, 1948 Code, extends commercial district (Special)

45324 Establishes alley from Humphrey Street to alley in block 5119, alley from Alfred Ave. to proposed alley (Special)

45325 Vacates Easton Ave. (Special)

45326 Vacates alleys (Special)

45327 Repeals Ord. 32992 (Repealer)

45328 Vacates alley (Special)

45329 Repeals Ord. 45038 (Repealer)

45330 Parking, Gratiot Strect (Not codified)

45331 Parking, Broadway (Not codified)

45332 Stop intersection, Louisiana Ave. and Miami Street (Not codified)

45333 Parking, Forest Park Ave., repeals § 377, Ch. 69, 1948 Code (Repealed by 46525 and 48125).

45334 Amends Art. 2, Ch. 8, 1936 Code, extends commercial district (Special)

45335 Amends Part 3, 1948 Code, extends commercial district (Special)

45336 Amends Part 3, 1948 Code, extends commercial district (Special)

45337 Amends Part 3, 1948 Code, extends multiple dwelling district and "B" height and area district (Special)

45338 Amends Part 3, 1948 Code, extends commercial district (Special)

45339 Amends Part 3, 1948 Code, extends commercial district (Special)

45340 Amends Part 3, 1948 Code, extends unrestricted district (Special)

45341 Amends Part 3, 1948 Code, extends industrial district (Special)

45342 Appropriations for expenses for fiscal year (Special)

45343 Establishes tax rate for 1950 (5.26.010—5.26.050)

45344 Vacates alley (Special)

45345 Authorizes contract with city of Kirkwood to discharge sewage into city system (Special)

45346 Stop intersection, St. Louis Ave. and Glasgow Ave. (Not codified)

45347 Parking, Second Street (Not codified)

45348 Parking, Menard Street (Not codified)

45349 School stops, Second Street and Victor Street, Third Street and Victor Street, Second Street and Sidney Street (Not codified)

45350 School stop, Shenandoah Ave. and Tennessee Ave. (Not codified)

45351 Parking, Hebert Street, Palm Street, Ashland Ave. and Clara Ave. (Not codified)

45352 Designates Greer Ave. and Labadie Ave. one-way streets (Not codified)

45353 Parking, Marconi Ave. (Not codified)

45354 Parking, West Park Ave. (Not codified)

45355 Parking, Kingshighway Boulevard, Southwest Ave., repeals § 23 1, Ch. 69, 1948 Code (Repealed by 46525)

45356 Stop intersection, Leffingwell Ave. and Dayton Street (Not codified)

45357 Stop intersection, Easton Ave. and Glasgow Ave. (Not codified)

45358 Vacates Bowen Street (Special)

45359 Amends § 745, Ch. 69, 1948 Code, parking Sixth Street (Not codified)

45360 Parking, Jefferson Ave. (Repealed by 46525)

45361 Stop intersection, Natural Bridge Ave. and Clara Ave. (Not codified)

45362 Stop intersection, Semple Ave. and Wabada Ave. (Not codified)

45363 Stop intersection, Goodfellow Boulevard and Lotus Ave. (Repealed by 46394)

45364 Stop intersection, Minnesota Ave. and Potomac Street (Not codified)

45365 Adds § 58-A, Ch. 69, 1948 Code, chapter does not apply to Hadley Street (Not codified)

45366 School stop, Broadway and Talcott Ave., repeals § 1597, 1948 Code, Ch. 69 (Repealed by 45508)

45367 Parking, Hadley Street, repeals §§ 364, 581, 582, Ch. 69, 1948 Code (Not codified)

45368 Parking, California Ave. (Repealed by 46525)

45369 Parking, Carr Lane Ave. (Not codified)

45370 Parking, Vandeventer Ave. (Not codified)

45371 School stop, Ewing Ave. and Rutger Street (Not codified)

45372 Parking, Ashland Ave. (Not codified)

45373 Parking, Gustine Ave. (Not codified)

45374 Parking, Iron Street (Not codified)

45375 School stop, Pemod Ave. and Sulphur Ave. (Not codified)

45376 Parking, Cherokee Street, Oregon Ave., California Ave., Iowa Ave., Ohio Ave. and Texas Ave. (Not codified)

45377 Parking, Hadley Street (Repealed by 46734)

45378 Parking trucks, Mullanphy Street (Not codified)

45379 Repeals Ord. 44704 (Repealer)

45380 Stop intersection, West Florissant Ave. and Robin Ave. (Repealed by 49073)

45381 Vacates DeKalb Street (Special)

45382 Vacates alley (Special)

45383 Vacates alley (Special)

45384 Vacates portion Koelin Ave. (Special)

45385 Vacates alley (Special)

45386 Vacates portion Hereford Street (Special)

45387 Vacates various streets and alleys (Special)

45388 Appropriation for damages (Special)

45389 Appropriation for damages (Special)

45390 Appropriation for damages (Special)

45391 Orders election to ratify new or revised city charter (Failed)

45392 Authorizes Wabash Railroad Co. to construct tracks across various streets (Special)

45393 Vacates alleys, block 759, DeKalb Street and Louisa Street (Special)

45394 Stop intersection, Twentieth Street and Bremen Ave. (Not codified)

45395 Parking, Twentieth Street (Not codified)

45396 Parking, Fourteenth Street (Not codified)

45397 School stop, Cass Ave. and Twenty-second Street, Dickson Street and Twenty-second Street (Not codified)

45398 Repeals Ord. 45256 (Repealer)

45399 Parking, Fourth Street (Repealed by 46525)

45400 Parking, Seventh Boulevard (Repealed by 48333)

45401 Parking, Vandeventer Ave. (Not codified)

45402 Grade, Buchanan Street (Special)

45403 Grade, Angelrodt Street (Special)

45404 Grade, Branch Street (Special)

45405 Grade, Dock Street (Special)

45406 Grade, North Market Street (Special)

45407 Repeals § 55, Ch. 56, 1948 Code (Repealer)

45408 Appropriation for board of freeholders (Special)

45409 Appropriation for payment of salary claims and interest (Special)

45410 Sale of property (Special)

45411 Authorizes contracts for repair of slide on River Des Peres drainage works (Special)

45412 Sale of property (Special)

45413 Parking, Ohio Ave. (Not codified)

45414 Traffic-control signals, East St. Louis Mississippi River Bridge and Third Street, Delmar Boulevard and Fourth Street, Fourth Street and Franklin Avenue (Not codified)

45415 Parking, Jefferson Ave. (Not codified)

45416 Parking, Shenandoah Ave. (Repealed by 46525)

45417 Parking, Vandeventer Ave. (Not codified)

45418 Parking, Henner Ave. (Repealed by 48812)

45419 Parking, Brown Ave. (Not codified)

45420 Appropriation for damages (Special)

45421 Playground stop, Howard Street and Twenty-fifth Street (Not codified)

45422 School stop, Howard Street and Twenty-fifth Street (Not codified)

45423 Parking, Sixth Street (Not codified)

45424 Designates Rhodes Ave. one-way street (Not codified)

45425 Parking, Thirty-ninth Street, Shenandoah Ave. (Repealed by 46525 and 48333)

45426 School stop, Vandeventer Ave. and Bell Ave. and West Belle Place (Not codified)

45427 Authorizes contract with Riverview Terrace, second addition to discharge sewage into city system (Special)

45428 Stop intersection, Penrose Street and Warne Ave. (Not codified)

45429 Improvement of alley (Special)

45430 Designates Aldine Place one-way street (Not codified)

45431 Amends § 50, Ch. 69, 1948 Code, parking certain areas (Repealed by 46687)

45432 Amend § 19, Ch. 69, 1948 Code, emergency vehicles (Repealed by 46687)

45433 Parking, Thirteenth Street (Not codified)

45434 Designates Wilcox Ave. and Duke Street one-way streets (Repealed by 45435)

45435 Stop intersection, Gustine Ave. and Meramec Street (Not codified)

45436 Parking, Arsenal Street (Not codified)

45437 Parking, Wydown Ave. (Not codified)

45438 Parking, Dock Street (Repealed by 50234)

45439 Parking, Eleventh Street (Repealed by 45575)

45440 Parking, Fourteenth Street (Not codified)

45441 Parking, Eleventh Street (Repealed by 45615)

45442 Parking, Gravois Ave. and Allemania Street (Not codified)

45443 Parking, Lexington Ave. (Not codified)

45444 Sale of property (Repealed by 47315)

45445 Hospitals in Class I, II, III or IV buildings (Repealed by 60828)

45446 Authorizes permit for billboard (Special)

45447 Authorizes connection of city fire alarm system with Veterans Administration Hospital (Special)

45448 Amends § 1, Ord. 45343; adds §§ 5 and 6, tax rate for 1950 (Special)

45449 Repeals § 11, Ch. 28, 1948 Code (Repealer)

45450 Amends § 28, Art. 3, Ch. 5, § 76, Art. 4, Ch. 5, 1948 Code, license fees (Repealed by 51376)

45451 Parking, Tower Grove Ave. (Repealed by 48333, 49469)

45452 Parking, Belt Ave; repeals § 74, Ch. 69, Vol. 1, 1948 Code (Not codified)

45453 Ratifies grant agreement for Federal Aid Project No. 9-23-034-002 (Special)

45454 Ratifies grant agreement for Federal Aid Project 9-23-034-003 (Special)

45455 Appropriation for construction of health center buildings (Special)

45456 Establishes Vivian Place (Special)

45457 Changes name of Watson Road to Chippewa Street (Special)

45458 Parking, Fourth Street (Repealed by 46525)

45459 Amends § 1, Ord. 44920, parking, Broadway (Repealed by 46525)

45460 Amends § 104, Ch. 69, 1948 Code, Ord. 45079, parking, Natural Bridge Ave.; adds § 104.2 (Repealed by 46525 and 48333)

45461 Vacates alley (Special)

45462 Unlawful to sell, lend, give away or show certain publications to minor (15.126)

45463 Parking, Manchester Ave. (Repealed by 46525)

45464 Provides for leasing block 2143 and parts of First Street and Warren Street to Wabash Railroad Co. (Special)

45465 Conditional vacation (Special)

45466 Vacates alley (Special)

45467 Sale of property (Special)

45468 Sale of property (Special)

45469 Authorizes contract for reconstruction of Jamieson Ave. (Special)

45470 Stop intersection, Lloyd Ave. and Tamm Ave. (Special)

45471 Authorizes contract with State Highway Commission to construct a sewer (Special)

45472 Stop intersection, Terrace Ave. and Rosa Ave. (Not codified)

45473 Stop intersection, Union Boulevard and Cote Brilliante Ave. (Not codified)

45474 Sale of property (Special)

45475 Sale of property (Special)

45476 Improvement, Marquette Ave. (Special)

45477 Provides for redevelopment of blighted areas, establishes land clearance commissioner (Repealed by 46059)

45478 Amends § 6, Part 3, Vol. 2, 1948 Code, Ord. 45309, boarding houses (Expired)

45479 Licenses and regulates trailer coach parks; repeals Ch. 70, 1948 Code (24.44)

45480 Adds § 7-A, Ord. 45304, church stop, Tamm Ave. and Scanlon Ave. (Not codified)

45481 Parking, Hereford Street (Not codified)

45482 Ratifies grant agreement for Federal Aid Project No. 9-23-034-004 (Special)

45483 Parking, Thurman Ave. (Repealed by 45602)

45484 Additional compensation for deputy clerks of magistrates (Special)

45485 Establishes civil defense organization (Repealed by 46688)

45486 Amends §§ 19 and 21, Ch. 2, 1948 Code, salaries of Board of Aldermen employees, repeals § 10, Ord. 44796 (Repealed by 46336, 48611, 50052, 50574, 52743, 53377)

45487 Sale of property (Special)

45488 Ratifies agreement with Veterans Administration for construction of relief sewer (Special)

45489 Authorizes contracts for construction of sewer in Bell Ave. (Special)

45490 Parking, Ann Ave. (Not codified)

45491 Parking, Jefferson Ave. (Repealed by 46525)

45492 Stop intersection, Louisiana Ave. and Magnolia Ave. (Not codified)

45493 Parking, Accomac Street (Not codified)

45494 Stop intersection, Cherokee Street and Lemp Ave. (Not codified)

45495 Parking, Pestalozzi Street and Thirteenth Street (Not codified)

45496 School stop, Arsenal Street and Louisiana Ave. (Repealed by 54343)

45497 Parking, Gravois Ave.; repeals § 1, Ord. 45442 (Repealed by 46525 and 45522

45498 Parking, Gravois Ave. (Repealed by 6525, 48333)

45499 School stop, Gustine Ave. and Dunnica Ave. (Not codified)

45500 Parking, Laclede Ave. (Repealed by 46525, 48333)

45501 Stop intersection, Lucas Ave. and Chenning Ave. (Not codified)

45502 School stop, Bell Ave. and Theresa Ave. (Not codified)

45503 Amends § 209, Ch. 69, 1948 Code, parking, Grand Boulevard (Repealed by Ord. 46525)

45504 Parking, Angelrodt Street (Not codified)

45505 School stop, Allen Ave. and McNair Ave. (Not codified)

45506 School stop, Geyer Ave. and McNair Ave. (Not codified)

45507 School stop, Mitchell Ave. and Prather Ave. (Not codified)

45508 School stop, Linton Ave. and Broadway, repeals Ord. 45366, school stop, Broadway and Talcott Ave. (Repealed by 50460)

45509 School stop, Fourteenth Street and Park Ave. (Repealed by 45762)

45510 Parking, Thirteenth Street (Not codified)

45511 School stop, Fourteenth Street and LaSalle Street (Not codified)

45512 Traffic-control signals, Chouteau Ave. and Fourteenth Street (Not codified)

45513 Stop intersection, Eighteenth Street and Park Ave., repeals § 1675, Ch. 69, 1948 Code (Not codified)

45514 Appropriation for purchase of feeder at Henry W. Kiel Auditorium (Special)

45515 Authorizes payment to Missouri Pacific Railroad Co. (Special)

45516 Amends § 2, Ord. 45016, magistrate court appointees (4.24.010)

45517 Parking, Ashland Ave. (Not codified)

45518 Designates Lexington Ave. and Palm Street one-way streets (Not codified)

45519 School stop, Clara Ave. and Ashland Ave. (Repealed by 50805)

45520 Designates Lansdowne Ave. one-way street (Not codified)

45521 Parking, Kingshighway Boulevard, repeals § 234, Ch. 69, 1948 Code (Repealed by 46525)

45522 Parking, Hereford Street, repeals § 588, Ch. 69, 1948 Code (Not codified)

45523 Playground stop, Southwest Ave. and Reber Place (Not codified)

45524 School stop, Southwest Ave. and Reber Place (Not codified)

45525 Parking, Manchester Ave. (Repealed by 46525)

45526 Parking, West Park Ave. (Not codified)

45527 Repeals § 497, Ch. 69, 1948 Code (Repealer)

45528 Parking, Delmar Boulevard (Repealed by 48333)

45529 Parking, Amelia Ave. (Repealed)

45530 Parking, Geraldine Ave. (Not codified)

45531 Parking, Goodfellow Boulevard (Repealed by 46525)

45532 Parking, Wren Ave. (Repealed by 48808)

45533 Parking, Washington Boulevard (Repealed)

45534 Extends federal control on rents (Special)

45535 Sale of property (Special)

45536 Appropriation for water system at Jefferson Barracks (Special)

45537 Parking, Nebraska Ave. (Repealed by 49594)

45538 Stop intersection, Cora Ave. and Evans Ave. (Not codified)

45539 Stop intersection, Delmar Ave. and Pendleton Ave. (Not codified)

45540 Stop intersection, Shreve Ave. and Bircher Boulevard (Repealed by 51092)

45541 Stop intersection, St. Louis Ave. and Twenty-Fifth Street (Not codified)

45542 Parking, Spring Ave. (Not codified)

45543 Stop intersection, Lee Ave. and Shreve Ave., repeals § 1809, Ch. 69, 1948 Code, designating same intersection school stop (Not codified)

45544 Stop intersection, Hodiamont Ave. and Etzel Ave. (Not codified)

45545 Appointment of house of detention employees (Repealed by 45699)

45546 Vacates alley (Special)

45547 Vacates excess triangular portion of Loughborough Ave. (Special)

45548 Vacates Newman Ave. (Special)

45549 Appropriation for office of director of civil defense (Special)

45550 Parking, Market Street (Repealed by 46525)

45551 Parking, Gratiot Street (Not codified)

45552 Amends § 475, Part 1, Vol. 2, 1948 Code, Class VI wood frame structures; repeals Ord. 45223 (Repealed by 50502)

45553 Vacates alley (Special)

45554 Comprehensive compensation plan (4.10)

45555 Amends § 98, Ch. 23, 1948 Code, Ord. 45181, employee salaries of treasury division (4.26.010, 4.26.020)

45556 Amends Ord. 45469, contract for reconstruction of Jamieson Ave. (Special)

45557 Amends Ord. 45310, contract for improvement of Jamieson Ave. (Special)

45558 Provides for relief of James J. and Marie B. Kenny (Special)

45559 Amends § 21, Ch. 2, 1948 Code, Ord. 45486, Board of Aldermen employees salaries (Repealed by 46336, 48611, 50052, 50574, 52743, 53377)

45560 Vacates sewer easement (Special)

45561 Vacates alley (Special)

45562 Vacates Bowen Street (Special)

45563 Provides that the certificate or license of master or journeyman plumber expiring while in armed forces to be renewed (Repealed by 48919, 50502)

45564 Amends § 20, Ch. 2, Vol. 1, 1948 Code, compensation of Board of Aldermen (3.06.090)

45565 Designates public park as Barrett Brothers Memorial Park (22.44.100)

45566 Parking, Euclid Ave. (Repealed by 45693)

45567 School stop, Fourteenth Street and Salisbury Street (Not codified)

45568 Parking, Broadway (Repealed by 46525)

45569 Parking, Tenth Street and Howard Street (Not codified)

45570 Parking, Seventh Boulevard (Repealed by 48333 and 51023)

45571 Parking, Barton Street (Not codified)

45572 Parking, Euclid Ave. (Not codified)

45573 Kingshighway Boulevard (Repealed by 46525)

45574 Playground stop, Ninth Street and Tyler Street (Repealed by 48074)

45575 Repeals Ord. 45439 (Repealer)

45576 Parking, Rutger Street (Repealed by 49284)

45577 Approves contract for slum clearance and urban development (Repealed by 46059)

45578 Appropriations for current expenses (Special)

45579 Parking, Oregon Ave., Iowa Ave., Ohio Ave., Texas Ave.; repeals §§ 3, 6, 9, 11, Ord. 45376 (Not codified)

45580 Authorizes contracts for improvement, Lindbergh Boulevard (Special)

45581 Adds land to Lambert-St. Louis Municipal Airport (18.04.030B)

45582 Amends § 1498, Art. 1, Ch. 13, Part 1 Vol. 2, 1948 Code, theaters and places of assembly with stages and scenery (Repealed by 50502)

45583 Amends § 1596, Art. 2, Ch. 13, Part 1, Vol. 2, 1948 Code, moving picture theaters (Repealed by 50502)

45584 Parking, Beck Ave. (Not codified)

45585 Parking, Potomac Street (Repealed by 49516)

45586 Parking, Union Boulevard (Repealed by 46525)

45587 Stop intersection, Natural Bridge Ave. and Chevrolet Ave. (Repealed by 49126)

45588 Stop intersection, Wilmington Ave. and Virginia Ave. (Not codified)

45589 Parking, Taylor Ave. and Delmar Boulevard (Repealed by 46525)

45590 Parking, Harney Ave. (Not codified)

45591 Playground stop, Kingshighway Boulevard and Sutherland Ave. (Repealed by 46548)

45592 Stop intersection, Lexington Ave. and Fair Ave. (Not codified)

45593 Parking, Natural Bridge Ave. (Repealed by 46525, 48333)

45594 Appropriation for damages (Special)

45595 Appropriation for damages (Special)

45596 Appropriation for damages (Special)

45597 Appropriation for damages (Special)

45598 Recorder of deeds employees, repeals Ord. 44820 (Repealed by 47293)

45599 Authorizes agreement with St. Louis Public Service Co. for sodium vapor lights (Special)

45600 Parking trucks, Benton Street and Eleventh Street (Not codified)

45601 Parking, Broadway (Repealed by 46525)

45602 Parking, Thurman Ave.; repeals Ord. 45483 (Not codified)

45603 Designates St. Louis Ave. one-way street (Not codified)

45604 Parking, Ashland Ave. (Not codified)

45605 Amends § 2, Ord. 44210, deputy constables salaries (4.32.010)

45606 Amends § 1, Ord. 44831, sheriff office employees (4.36)

45607 Changes name of Dillenberger Ave. to Dolan Place (Special)

45608 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

45609 Grade for alleys (Special)

45610 Amends Ord. 45230, street improvement (Special)

45611 Adds § 58-B, Ch. 69, 1948 Code, chapter shall not apply to Broadway, repeals § 732, Ch. 69, 1948 Code (Repealed by 46687)

45612 Amends Ord. 45471, sewer contract (Special)

45613 Parking, Beck Ave. (Not codified)

45614 Stop intersection, Hartford Street and Gustine Ave. (Not codified)

45615 Parking, Eleventh Street; repeals Ord. 45441 (Repealed by 46525)

45616 Parking, Palm Street; repeals Ord. 44846

45617 Parking, Broadway (Repealed by 46525)

45618 Coroner and Morgue employees, repeals Ord. 44819 (Repealed by 46335)

45619 Amends §§ 3, 11 and 12, Ord. 45477, land clearance ordinance (Repealed by 46059)

45620 Amends §§ 41 and 42, Ch. 6, 1948 Code, birds (10.12.040)

45621 Appropriations for current expenses (Special)

45622 Amends § 11, Ch. 2, 1948 Code, Mayor's contingent fund (5.42)

45623 Amends Ord. 45311, street improvement contract (Special)

45624 Appropriation for damages (Special)

45625 Sale of property (Special)

45626 Vacates Benedict Ave. (Special)

45627 Vacates Benedict Ave. (Special)

45628 Appropriation for damages (Special)

45629 Designates Delor Street major street (Not codified)

45630 Parking, McCullaugh Place (Not codified)

45631 Parking, Eleventh Street (Not codified)

45632 Designates Eleventh Street one-way street (Not codified)

45633 Parking, Newstead Ave. (Repealed by 46525)

45634 Parking, Natural Bridge Ave. (Repealed by 46525, 48333)

45635 Parking, Pine Street; repeals §§ 696 and 699, Ch. 69, 1948 Code (Repealed by 46525)

45636 Designates Chestnut Street and Lawton Boulevard one-way streets; repeals §§ 477, 481, 851 and 880, Ch. 69, 1948 Code (Not codified)

45637 Designates alleys bounded by Franklin Ave., Clark Ave., Third Ave., Twelfth Boulevard one-way (Not codified)

45638 Parking, Sixth Street, Seventh Street, Eighth Street, Ninth Street and Locust Street (Repealed by 46525)

45639 Parking, Union Boulevard (Repealed by 46525)

45640 Designates Ashland Ave. one-way street (Not codified)

45641 Amends § 970, Ch. 69, 1948 Code, Kossuth Ave. designated major street (Not codified)

45642 Parking, Broadway (Repealed by 46525)

45643 Authorizes contracts for reconstruction, Euclid Ave. Bridge (Special)

45644 Authorizes contracts for construction of plane loading facilities at LambertSt. Louis Municipal Airport (Special)

45645 Traffic-control signals, Finney Ave. and Vandeventer Ave. (Repealed by 47012)

45646 Establishes alley (Special)

45647 Amends Part 3, Vol. 2, 1948 Code, extends "F" local business district (Special)

45648 Vacates walk (Special)

45649 Repeals Ord. 45095 (Repealer)

45650 Vacates Hazel Ave. (Special)

45651 Conditional vacation of alley (Special)

45652 Stop intersection, Sheridan Ave. and Webster Ave. (Not codified)

45653 Stop intersection, Cole Street and Jefferson Ave. (Not codified)

45654 Stop intersection, Leffingwell Ave. and Gamble Street (Not codified)

45655 Stop intersection, Kossuth Ave. and Shreve Ave. (Not codified)

45656 Stop intersection, Twentieth Street and Palm Street (Not codified)

45657 Stop intersection, Nineteenth Street and Palm Street (Not codified)

45658 Stop intersection, Nagel Ave. and Michigan Ave. (Not codified)

45659 Amends Part 3, Vol. 2, 1948 Code, extends "F" local business district (Special)

45660 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

45661 Authorizes contracts for improvement of unlighted streets (Special)

45662 Appropriations for termination of professional service contracts (Special)

45663 Dedication of strips of land for St. Louis Municipal Airport (18.04.040)

45664 Amends § 57, Ch. 65, 1948 Code, taxicabs (8.98.360)

45665 Establishes maximum hours for fire department (3.24)

45666 Amends Part 3, 1948 Code, extends "H" commercial district (Special)

45667 Authorizes contract for construction of bridge on Weber Road (Special)

45668 Authorizes contracts for construction of runway 18-36, extension of runway 12-30 (Special)

45669 License collector custodians (4.28)

45670 Amends Ord. 45178, compensation of cashiers and inspectors of License Collector (4.28)

45671 Vacates utility easement (Special)

45672 Grades, Marquette Ave. (Special)

45673 Appropriation for payment of salary claims (Special)

45674 Dedication of public street (Special)

45675 Parking, Pattison Ave. (Repealed by 47634)

45676 Parking, Manchester Ave. (Repealed by 46525)

45677 Parking, Bischoff Ave.; repeals Ord. 45161 (Repealed by 45789)

45678 Parking, Boyle Ave. (Not codified)

45679 Parking, Vista Ave. (Not codified)

45680 Amends Part 3, 1948 Code, extends "K" unrestricted district (Special)

45681 Amends Part 3, 1948 Code, extends "F" local business district (Special)

45682 Amends Part 3, 1948 Code, extends "F" commercial district (Special)

45683 Roominghouses (Repealed by 48338)

45684 Authorizes contracts for construction of public recreation facilities (Special)

45685 Vacates alley (Special)

45686 Authorizes Missouri Pacific Railroad to construct railroad tracks (Special)

45687 Vacates alley (Special)

45688 Vacates alley (Special)

45689 Improvement of alley (Special)

45690 Traffic-control signals, Easton Ave., Leonard Ave., Sheridan Ave. (Not codified)

45691 Parking, Mississippi Ave. (Not codified)

45692 School stops, Jamieson Ave. and Lindenwood Place, Jamieson Ave. and Pernod Ave. (Not codified)

45693 Repeals Ord. 45566 (Repealed by 48333)

45694 Parking, Taylor Ave. (Repealed by 46525)

45695 Parking, Olive Street (Repealed by 46525)

45696 Parking, Washington Ave. (Not codified)

45697 Sale of property (Special)

45698 Sale of property (Special)

45699 Appointment and salaries of House of Detention employees; repeals Ord. 45545 (Repealed by 47796)

45700 Authorizes purchase of land for public park and playground (Special)

45701 Establishes Ellendale Ave. (Special)

45702 Amends § 275, Ch. 3, Part 1, Vol. 2, 1948 Code, fire limits (Repealed by 50502)

45703 Vacates Heber Street, alleys, blocks 3332, 3333 and 3334 (Special)

45704 Amends Part 3, 1948 Code, extends "F" local business district (Special)

45705 Amends Part 3, 1948 Code, extends "G" commercial district (Special)

45706 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

45707 Authorizes supplemental agreement with State Highway Commission (Special)

45708 Establishes alley (Special)

45709 Authorizes purchase of site for refuse disposal (Special)

45710 Appropriation for damages (Special)

45711 Parking, Thrush Ave. (Not codified)

45712 Parking, Vista Ave. (Repealed by 45744)

45713 Establishes tax rate for 1951 (5.26.010—5.26.050)

45714 Appropriation for current-expenses for fiscal year (Special)

45715 Authorizes purchase of site for refuse disposal (Special)

45716 Appropriation for establishing Gustine Ave. and Itaska Street at grade crossings (Special)

45717 Additional appropriation for installation of electrical apparatus at Henry W. Kiel Auditorium (Special)

45718 Parking, Destrehan Street (Not codified)

45719 School stop, West Florissant Ave. and Prairie Ave. (Not codified)

45720 Parking, Grand Boulevard (Repealed by 46525, 48333)

45721 Parking, Prairie Ave. (Not codified)

45722 Parking, Fourteenth Street (Not codified)

45723 School stop, Shenandoah Ave. and Missouri Ave.

45724 Playground stop, Meramec Street and Ohio Street (Not codified)

45725 Parking, Broadway, Ivory Ave. and Virginia Ave. (Repealed by 46525, 48333)

45726 Repeals § 289, Ch. 69, 1948 Code (Repealer)

45727 Parking, Vandeventer Ave. (Repealed by 46525)

45728 Parking, Natural Bridge Ave. (Not codified)

45729 Parking, Ashland Ave. and Kimberly Ave. (Not codified)

45730 Parking, Lilian Ave. (Not codified)

45731 Adds § 7-B, Ord. 45304, church stop, Clara Ave. and Ridge Ave. (Not codified)

45732 Adds § 7-C, Ord. 45304, church stop, Pernod Ave. and Watson Ave. (Not codified)

45733 Parking, Chippewa Street (Repealed by 46525)

45734 Parking, San Francisco Ave.; repeals § 1, Ord. 43468 (Repealed by 49294)

45735 Parking, Plover Ave. (Not codified)

45736 Parking, Riverview Boulevard and Bircher Boulevard (Not codified)

45737 Parking, Natural Bridge Ave. (Repealed by 46525, 48333)

45738 Parking, Kingshighway Boulevard (Not codified)

45739 Parking, Brown Ave. (Not codified)

45740 School stop, West Florissant Ave. (Repealed by 49723)

45741 School stop, Hamilton Ave. and Washington Boulevard (Not codified)

45742 Parking, Washington Boulevard (Not codified)

45743 Designates Washington Boulevard oneway street (Not codified)

45744 Repeals Ord. 45712 (Repealer)

45745 Vacates Schiller Ave. (Special)

45746 Vacates Gratiot Street, Papin Street and alley (Special)

45747 Sale of property (Special)

45748 Sale of property (Special)

45749 Sale of property (Special)

45750 Stop intersection, Twentieth Street and Ferry Street (Not codified)

45751 Stop intersection, Riverview Boulevard and Lilian Ave. (Not codified)

45752 Designates Powers Ave. one-way street (Not codified)

45753 Sale of property (Special)

45754 Prohibits operation of any truck in alley from Maffitt Ave. to Terry Ave. (Repealed by 57831)

45755 Designates Romaine Place one-way street (Not codified)

45756 Designates alley from Maffitt Ave. to Terry Ave. one-way (Not codified)

45757 Parking, Taylor Ave. (Not codified)

45758 Parking, Olive Street (Repealed by 46525)

45759 Parking, Sarah Street (Repealed by 45868)

45760 Parking, Stratford Ave.; repeals § 768, Ch. 69, 1948 Code (Repealed by 48587)

45761 Parking, Ferris Ave. (Not codified)

45762 Stop intersection, Fourteenth Street and Park Ave.; repeals Ord. 45509 (Not codified)

45763 School stops, Brannon Ave. and Fairview Ave., Brannon Ave. and Potomac Street (Not codified)

45764 Parking, Fourteenth Street (Repealed by 45861)

45765 Parking, Tholozan Ave. (Not codified)

45766 School stops, Cardinal Ave. and Hickory Street, Cardinal Ave. and LaSalle Street, Hickory Street and Montrose Ave., and LaSalle Street and Montrose Ave. (Not codified)

45767 Stop intersection, Arsenal Street and Dalton Ave. (Not codified)

45768 Parking, Dale Ave. (Not codified)

45769 Parking, Kingshighway Boulevard; repeals § 1, Ord. 45355 (Repealed by 46525)

45770 Vacates alley (Special)

45771 Amends § 2, Ord. 45307, parking meters (Repealed by 48484)

45772 Additional appropriation for current expenses (Special)

45773 Appropriation for parole office expenses (Special)

45774 Ratifies grant agreement for federal air project No. 9-23-034-002 (Special)

45775 Improvement, alley (Special)

45776 Ratifies grant agreement for federal aid project No. 9-23-034-005 (Special)

45777 Authorizes contracts for improvement, Canterbury Ave. (Special)

45778 Improvement, Frederick Street

45779 Parking, Louis Ave. (Repealed by 46525, 48333)

45780 Parking, Russell Ave. (Not codified)

45781 Authorizes contracts for improvement, Carondelet Boulevard (Special)

45782 Stop intersection, Penrose Street and Fair Ave. (Not codified)

45783 Designates Blackstone Ave. one-way street (Not codified)

45784 Designates Shawmut Place one-way street (Not codified)

45785 Improvement, alley (Special)

45786 Repeals § 3, Ord. 45351 (Repealer)

45787 Improvement, alley (Special)

45788 Improvement, alley (Special)

45789 Parking, Bischoff Ave.; repeals Ord. 45677 (Not codified)

45790 Parking, Delmar Boulevard (Not codified)

45791 Parking, Kosciusko Street (Not codified)

45792 Traffic-control signals, DeKalb Street and Russell Ave., Russell Ave. 130 feet east of curbline of DeKalb Street (Not codified)

45793 School stop, Clifton Ave. and Eichelberger Street (Not codified)

45794 Stop intersection, Robert Ave. and Vermont Ave. (Not codified)

45795 Repeals § 1368, Ch. 69, 1948 Code (Repealer)

45796 Parking, Rutger Street (Not codified)

45797 Parking, Motard Ave. (Not codified)

45798 Parking, Lambdin Ave. (Not codified)

45799 Parking, Forest Park Ave.; repeals Ord. 45305 (Not codified)

45800 Designates Prether Ave. one-way street (Not codified)

45801 Stop intersection, Hampton Ave. and Fyler Ave. (Not codified)

45802 Parking, Sulphur Ave. (Not codified)

45803 Parking, Manchester Ave. (Repealed by 46525)

45804 Appropriation for damages (Special)

45805 Appropriation for damages (Special)

45806 Appropriation for damages (Special)

45807 Appropriation for damages (Special)

45808 Appropriation for damages (Special)

45809 Speed limit, Seventh Boulevard (Repealed by 57831)

45810 Parking, Seventeenth Street (Not codified)

45811 Designates Montrose Ave. one-way street (Not codified)

45812 Sale of property (Special)

45813 Designates Vista Ave. one-way street (Not codified)

45814 Parking, Boyle Ave. (Repealed by 48259)

45815 Parking, Bircher Boulevard (Not codified)

45816 Parking, Thirty-Eighth Street (Not codified)

45817 Extends period for furnishing lodging for compensation, adds § 7, Part 3, Vol. 2, 1948 Code; repeals Ord. 45478, § 6, Part 3, Vol. 2, 1948 Code (Expired)

45818 Designates Bancroft Ave. one-way street (Not codified)

45819 Sale of property (Special)

45820 Authorizes letting of bids for selling candy, ice cream, nonalcoholic drinks, fruits, cigars and refreshments in public parks; repeals §§ 7, 8 and 9, Ch. 48, 1948 Code (Repealed by 49771)

45821 Authorizes contract for discharging sewage into city system (Special)

45822 Adds §§ 98 and 99, Ch. 55, 1948 Code, tax on gross receipts of waterworks revenue fund (23.38)

45823 Parking, Olive Street; repeals §§ 280, 283, 284, 285, 287 and 369, Ch. 69, 1948 Code (Repealed by 46525)

45824 Sale of property (Special)

45825 Designates Papin Street one-way street (Not codified)

45826 Sale of property (Special)

45827 Sale of property (Special)

45828 Sale of property (Special)

45829 Sale of property (Special)

45830 Sale of property (Special)

45831 Sale of property (Special)

45832 Sale of property (Special)

45833 Sale of property (Special)

45834 Sale of property (Special)

45835 Sale of property (Special)

45836 Sale of property (Special)

45837 Appropriation for interregional highway revolving fund (Special)

45838 Ratifies agreement with housing and home finance agency for preparing plans for Harlem-Baden relief sewers (Special)

45839 Establishes alley (Special)

45840 Conditional vacation, part of Elward Ave. (Special)

45841 Vacates Pierce Ave. and alley (Special)

45842 Establishes alley (Special)

45843 Vacates Prospect Ave. and alley (Special)

45844 Vacates Nashville Ave. (Special)

45845 Establishes park and playground (Special)

45846 Vacates alley (Special)

45847 Fixes fee for prisoner board for 1951 (16.12.030)

45848 Extends effective date Ord. 45445, hospitals (Not codified)

45849 Sale of property (Special)

45850 Appropriation for improvement at Lambert-St. Louis Municipal Airport 45877 (Special)

45851 Authorizes contract with Town Service, Inc., to discharge sewage into city system (Special)

45852 Sale of property (Special)

45853 Extends social security to uncovered city employees (Ch. 4.20)

45854 Sale of property to McDonnell Aircraft Corp. (Special)

45855 Amends Part 3, 1948 Code, extends "D" multiple-family dwelling district (Special)

45856 Grants St. Clair County easements for bridge and western approach, vacates portion, Kosciusko Street (Special)

45857 Amends Ord. 44733, § 83-5, Part 1, Vol. 2, 1948 Code, school construction (Repealed by 45969, 50502)

45858 Sale of property (Special)

45859 Sale of property (Special)

45860 Sale of property (Special)

45861 Parking, Fourteenth Street; repeals Ord. 45764 (Not codified)

45862 Parking, Geyer Ave. (Not codified)

45863 Stop intersection, Third Street and Miller Street (Not codified)

45864 Parking, Gravois Ave. (Repealed by 46525)

45865 Parking, Sidney Street (Not codified)

45866 Parking, Jefferson Ave. (Repealed by 46525)

45867	Playground stop, Broadway and Schirmer Street (Not codified)
45868	Parking, Sarah Street; repeals Ord. 45759 (Repealed by 46525)
45869	Stop intersection, Norwood Ave. and St. Louis Ave., repeals § 1891, Ch. 69, 1948 Code (Not codified)
45870	School stop, Prairie Ave. and Sullivan Ave. (Not codified)
45871	Playground stop, Goodfellow Boulevard and Labadie Ave. (Not codified)
45872	Parking, Hodiamont Ave. (Repealed by 46525, 48333)
45873	Adds § 7-D, Ord. 45304, designates Nottingham Ave. and Tamm Ave., church stop (Not codified)
45874	Repeals § 1187, Ch. 69, 1948 Code (Repealer)
45875	Parking, Manchester Ave. and Richert Ave. (Repealed by 46525)
45876	Parking, Aubert Ave. (Not codified)
45877	Parking, Riverview Boulevard; repeals § 1, Ord. 45736 (Not codified)
45878	Stop intersection, Plover Ave. and Theodore Ave. (Repealed by 48785)
45879	School stop, Riverview Boulevard and Woodland Ave. (Repealed by 48588)
45880	Parking, Wren Ave., Prange Ave., and Woodland Ave. (Not codified)
45881	Sale of property (Special)
45882	Appropriation for damages (Special)
45883	Sale of property (Special)
45884	Changes Clifton Ave. to Elizabeth Ave., repeals Ord. 30395 (Special)
45885	Purchase of property (Special)
45886	Sale of property (Special)
45887	Parking, Pestalozzi Street (Not codified)
45888	School stop, Clark Ave. and Garrison Ave. (Repealed by 49872)
45889	Parking, Chippewa Street (Not codified)
45890	School stop, California Ave. and Gasconade Street (Not codified)
45891	Designates Tholozan Ave. one-way street (Not codified)
45892	Stop intersection, Carondelet Boulevard, Morgan Ford Road and River Des Peres Boulevard (Not codified)
45893	Parking, Gravois Ave.; repeals Ord. 42796 (Not codified)
45894	Parking, Chouteau Ave., Thirty-ninth Street, Spring Ave.; repeals § 113, Ch. 69, 1948 Code (Not codified)
45895	School stop, Chouteau Ave. and Sarah Street
45896	Parking, Kingshighway Boulevard (Not codified)
45897	Parking, Washington Boulevard; repeals Ord. 45533 (Repealed by 46525)
45898	Playground stop, Cook Ave., Newberry Terrace and Taylor Ave. (Not codified)
45899	Parking, Enright Ave. (Not codified)
45900	Stop intersection, West Belle Place and Whittier Street (Not codified)
45901	Parking, Washington Boulevard (Repealed by 46525)
45902	Playground stop, Bell Ave. and Cardinal Ave. (Not codified)
45903	Stop intersection, Easton Ave., Dickson Street and Webster Ave. (Not codified)
45904	Parking, Washington Boulevard (Repealed by 46525)
45905	Designates Shreve Ave. major street (Not codified)
45906	Parking, Chippewa Street (Repealed by 46525)
45907	Parking, Tamm Ave. (Not codified)
45908	Stop intersection, Watson Road and Pernod Ave. (Not codified)
45909	Parking, Page Boulevard (Not codified)
45910	Stop intersection, Waterman Boulevard and Rosedale Ave. (Not codified)
45911	Stop intersection, Garfield Ave. and Pendleton Ave. (Not codified)
45912	School stop, Jamieson Ave. and Willmore Road (Not codified)
45913	Playground stop, Highfield Place and Bishops Place (Not codified)

45914 School stop, Bent Ave. and Wyoming Street, Utah Street and Bent Ave. (Not codified)

45915 Church stop, adds § 7-E, Ord. 45304, Grand Boulevard and Pestalozzi Street (Not codified)

45916 Designates Potomac Street one-way street (Not codified)

45917 Traffic-control signals, Macklind Ave. and Manchester Ave., Macklind Ave. and railway tracks (Not codified)

45918 Parking, Grand Boulevard (Repealed by 46525)

45919 Stop intersection, Michigan Ave. and Schirmer Street (Not codified)

45920 Parking, Sarah Street (Not codified)

45921 Designates Sherman Place one-way street (Not codified)

45922 Designates Fair Ave. major street (Not codified)

45923 School stop, West Florissant Ave. and Alice Ave.; repeals § 2050, Ch. 69, 1948 Code (Repealed by 48086)

45924 School stops, Donovan Ave. and Eichelberger Street, Jamieson Ave. and Eichelberger Street (Not codified)

45925 Adds § 7-F, Ord. 45304, church stop, Donovan Ave. and Eichelberger Street (Not codified)

45926 Parking, Dressell Ave. (Not codified)

45927 Stop intersection, Union Boulevard and Brown Ave. (Repealed by 48650)

45928 Designates San Francisco Ave. one-way street (Not codified)

45929 Designates Etzel Ave. one-way street (Not codified)

45930 Playground stop, Morgan Ford Road and Osceola Street (Not codified)

45931 Sale of property (Special)

45932 Authorizes contract for construction of ambulance garage at Max C. Starkloff Hospital (Special)

45933 Stop intersection, West Florissant Ave. and Fair Ave.; repeals § 5, Ord. 44992 (Repealed by 46675)

45934 Parking, Mullanphy Street (Not codified)

45935 Parking, Eleventh Street and Cole Street, repeals parts of §§ 126 and 428, Ch. 69, 1948 Code (Repealed by 46525)

45936 Parking, Howard Street (Not codified)

45937 Parking, Beck Ave. (Not codified)

45938 School stop, Leffingwell Ave. and Lucas Ave. (Not codified)

45939 Designates Hammett Place one-way street (Not codified)

45940 Parking, Lansdowne Ave. (Not codified)

45941 School stop, Washington Boulevard and Lake Ave. (Not codified)

45942 School stop, Cates Ave. and Clarendon Ave. (Not codified)

45943 Parking, Morgan Ford Road (Not codified)

45944 Stop intersection, West Florissant Ave. and Prairie Ave. (Not codified)

45945 Repeals § 2, Ord. 45248, parking, Farrar Street (Repealer)

45946 Designates Walnut Street one-way street (Not codified)

45947 Parking, Eighth Street (Not codified)

45948 Amends § 475, Part 1, Vol. 2, 1948 Code; repeals Ord. 45552, Class 6 wood frame structures (Repealed by 50502)

45949 Amends § 275, Part 1, Vol. 2, 1948 Code, Ord. 45702, extends fire limits (Repealed by 50502)

45950 Amends § 71, Ch. 67, 1948 Code, city athletic commission (3.58.070)

45951 Appropriation for damages (Special)

45952 Unlawful to sell, give away or have possession of narcotics (11.60.100—11.60.130)

45953 Vacates alley (Special)

45954 Parking, Winnebago Street (Not codified)

45955 Appropriation for damages (Special)

45956 Sale of property (Special)

45957 Sale of property (Special)

45958 Appropriation for certificates of title, appraisals for acquisition of lands (Special)

45959 Sale of property (Special)

45960 Adds § 7, Ord. 45248, parking; § 3 does not apply (Not codified)

45961 Sale of property (Special)

45962 Parking, Broadway (Repealed by 46525)

45963 Parking, Natural Bridge Ave.; repeals § 368, Ch. 69, 1948 Code (Repealed by 46525, 48333)

45964 Stop intersection, Westminster Place and Walton Ave. (Not codified)

45965 Amends Part 3, 1948 Code, extends "G" commercial district (Repealed by 49035)

45966 Amends Part 3, 1948 Code, extends "B" two-family dwelling district (Special)

45967 Appropriation for damages (Special)

45968 Designates Maple Ave. one-way street (Not codified)

45969 Amends § 1641, 1948 Code; repeals Ord. 45857 (Repealed by 50502)

45970 Ratifies amendment to grant agreement for federal aid project No. 9-23-034-006 (Special)

45971 Ratifies amendment to grant agreement for federal aid project No. 9-23-034-002 (Special)

45972 Authorizes contract for preliminary architectural plans for proposed administration building for Lambert-St. Louis Municipal Airport (Special)

45973 Appropriations for current expenses (Special)

45974 Improvement, Daggett Ave. (Special)

45975 City liable for premiums on surety bonds for constables (4.32)

45976 Vacates easement (Special)

45977 Adds Ch. 3.85, Land Clearance for Redevelopment Authority (3.85)

45978 Ratifies grant agreement for federal aid project No. 9-23-034-006 (Special)

45979 Authorizes track agreement with Missouri Pacific Railroad Co. (Special)

45980 Authorizes contract for restoring paving over street car tracks (Special)

45981 Authorizes contract for construction of fire station No. 5-25 (Special)

45982 Sewer construction in Humboldt Ave. sewer district number one (Special)

45983 Sewer construction in Des Peres sewer district number five (Special)

45984 Sewer construction in Virginia Ave. joint sewer district number one (Special)

45985 Sale of property (Special)

45986 Designates Cherokee Street major street (Not codified)

45987 Designates Maffitt Ave. one-way street (Repealed by 46290)

45988 Appropriation for completion of hangar, shop building, ofirice, and taxiway (Special)

45989 Stop intersection, Halls Ferry Road and McLaran Ave.; repeals § 1756, Ch. 69, 1948 Code (Not codified)

45990 Stop intersection, Goodfellow Boulevard and McLaran Ave. (Not codified)

45991 Designates Cozens Ave. one-way street (Not codified)

45992 Parking, Gaine Street (Not codified)

45993 Parking, Indiana Ave. (Not codified)

45994 Stop intersection, Eichelberger Street and Hampton Ave. (Not codified)

45995 Designates Delmar Boulevard one-way street (Repealed by 47281)

45996 Stop intersection, Washington Boulevard and Leffingwell Ave. (Not codified)

45997 Stop intersection, Cass Ave. and Webster Ave. (Not codified)

45998 Traffic-control signals, Delmar Boulevard and Leffingwell Ave. (Not codified)

45999 Stop intersection, Beaumont Street and Lucas Ave. (Not codified)

46000 School stop, Riverview Boulevard and Newby Street; repeals § 1670, 1948 Code (Not codified)

46001 Vacates three and one-half inches of Locust Street (Special)

46002 Amends Part 3, 1948 Code, extends "A" single-family dwelling district (Special)

46003 Vacates Lame Street and alley (Special)

46004 Conditional alley vacation (Special)

46005 Conditional vacation, Bulwer Ave. (Special)

46006 Vacates alley (Special)

46007 Conditional alley vacation (Special)

46008 Vacates alleys (Special)

46009 Vacates sewer right-of-way (Special)

46010 Amends § 1, Ord. 44975, establishes Arendes Drive (Special)

46011 Conditional vacation, Van Buren Street (Special)

46012 Stop intersection, Broadway and Schirmer Street (Not codified)

46013 Parking, Compton Ave. (Not codified)

46014 Parking, Page Boulevard (Not codified)

46015 Adds § 7-G, Ord. 45304, church stop, Fountain Ave. and Kingshighway Boulevard (Not codified)

46016 Parking, Natural Bridge Ave. (Repealed by 46525)

46017 Designates Penrose Street one-way street (Not codified)

46018 Stop intersection, Jefferson Ave. and Park Ave.; repeals § 1777, Ch. 69, 1948 Code (Not codified)

46019 Parking, Missouri Ave. (Not codified)

46020 Parking, Jefferson Ave. (Repealed by 56525)

46021 Stop intersection, Ann Ave. and McNair Ave. (Not codified)

46022 Authorizes contracts for construction of fire station No. 19 (Special)

46023 Appropriation for repaying The May Department Stores Co. one-half cost of sewer (Special)

46024 Appropriation for damages (Special)

46025 Parking, Broadway (Repealed by 46525)

46026 Parking, Eleventh Street (Not codified)

46027 Parking, Macklind Ave. (Not codified)

46028 Parking, Natural Bridge Ave. (Repealed by 46525)

46029 Parking, Goodfellow Boulevard (Not codified)

46030 Parking, Geraldine Ave. (Not codified)

46031 Parking, Sullivan Ave. (Not codified)

46032 Parking, Carr Lane Ave. (Not codified)

46033 Stop intersection, Arlington Ave. and St. Louis Ave. (Not codified)

46034 Parking, Woodland Ave.; repeals Ord. 45880 (Not codified)

46035 Parking, McArthur Ave., Dressell Ave. and Darby Street (Not codified)

46036 Appropriation for damages (Special)

46037 Appropriation for damages (Special)

46038 Vacates walk from Jamieson Ave. to alley (Special)

46039 Amends § 2, Ord. 43145, establishes Jamieson Ave. (Special)

46040 Changes Helvetia Street to Stolle Street (Special)

46041 Designates Sixth Street, Seventh Street one-way streets, parking, same streets (Repealed by 46525)

46042 Designates Eighth Street, Ninth Street one-way streets, parking, same streets (Repealed by 46525)

46043 Vacates alleys (Special)

46044 Appropriation for payment of salary claims (Special)

46045 Sale of property (Special)

46046 Sale of property (Special)

46047 Sale of property (Special)

46048 Appropriation for damages (Special)

46049 Parking, Manchester Ave. (Repealed by 46525)

46050 Parking, Sunshine Drive (Not codified)

46051 Parking, Whittier Street (Not codified)

46052 Parking, Taylor Ave. (Repealed by 46525)

46053 Adds § 7-I, Ord. 45304, church stop, Kingshighway Boulevard and Ridge Ave. (Not codified)

46054 Parking, Skinker Boulevard (Not codified)

46055 Amends Part 3, 1948 Code, extends "F" local business district (Special)

46056 Amends Part 3, 1948 Code, extends "F" local business district (Special)

46057 Parking, Vandeventer Ave. (Repealed by 46221)

46058 Amends Part 3, 1948 Code, extends "H" commercial district (Special)

46059 Authorizes transfer of contract for advance, U.R. Mo. A-2 to land clearance for redevelopment authority; repeals Ords. 45477, 45619 and 45577 (Special)

46060 Grades, Ridgewood Ave. (Repealed by 46636)

46061 Sale of property (Special)

46062 Sale of property (Special)

46063 Appropriation for damages (Special)

46064 Sale of property (Special)

46065 Appropriation for acquisition of property for project UI 892(2) (Special)

46066 Authorizes contracts for alterations and additions to City Hospital, Psychopathic Hospital, City Infirmary, Infirmary Hospital, Homer G. Phillips Hospital and Robert Koch Hospital (Special)

46067 Authorizes contracts for improvements to City Art Museum Building (Special)

46068 Authorizes contracts for diversion of sewer (Special)

46069 Authorizes contracts for construction of incinerator plant (Special)

46070 Improvement, alley (Special)

46071 Parking, Jamieson Ave. (Not codified)

46072 Parking, Nebraska Ave. (Repealed by 49991)

46073 Vacates alley (Special)

46074 Authorizes contracts for improvement of unlighted streets (Special)

46075 Parking, North Broadway (Repealed by 46525)

46076 Authorizes contracts for construction of airplane parking apron, taxiways, lighting at Lambert-St. Louis Municipal Airport (Special)

46077 Stop intersection, Humphrey Street and Louisiana Ave. (Not codified)

46078 Parking, Euclid Ave. (Not codified)

46079 Designates Central Ave. one-way street (Not codified)

46080 Stop intersection, Graham Street and West Park Ave. (Repealed by 47274)

46081 Vacates alley (Repealed by 46081)

46082 Vacates various streets and alleys (Special)

46083 Amends Part 3, 1948 Code, extends "K" unrestricted district (Special)

46084 Establishes park and playground (Special)

46085 Vacates alley (Special)

46086 Authorizes contracts with state highway commission for "tension of state highway (Special)

46087 Authorizes contracts for rehabilitation and repair of terminal facilities at municipal dock (Special)

46088 Alley improvement (Special)

46089 Alley improvement (Special)

46090 Alley improvement (Special)

46091 Alley improvement (Special)

46092 Alley improvement (Special)

46093 Alley improvement (Special)

46094 Alley improvement (Special)

46095 Alley improvement (Special)

46096 Establishes alley (Special)

46097 Conditional vacation, southern four feet seven and one-half inches of street extending from Fourteenth Street (Special)

46098 Establishes Oakland Ave. (Special)

46099 Vacates alleys (Special)

46100 Vacates Catalan Street and Van Buren Street (Special)

46101 Appropriation for private sewer (Special)

46102	Amends § 1, Ord. 45839, establishes alley (Special)
46103	Amends Part 3, 1948 Code, extends "J" industrial district (Special)
46104	Unlawful for minor to mix or consume intoxicating liquor (15.116.02015.116.040)
46105	Parking, Third Street (Not codified)
46106	Stop intersection, St. Louis Ave. and Jefferson Ave. (Not codified)
46107	Stop intersection, Easton Ave. and Prairie Ave.; repeals § 1922, Ch. 69, 1948 Code (Not codified)
46108	Stop intersection, Eighteenth Street and Geyer Ave. (Not codified)
46109	Parking, Jefferson Ave. (Repealed by 46525)
46110	Parking, Loughborough Ave. (Not codified)
46111	Designates Bowen Street one-way street (Not codified)
46112	School stop, Delor Street and Newport Ave. (Not codified)
46113	School stop, Delor Street and Newport Ave.; repeals § 1659, Ch. 69, 1948 Code (Not codified)
46114	Parking, Thirty-eighth Street; repeals § 1, Ord. 45816 (Not codified)
46115	Adds § 7-H, Ord. 45304, church stop, Adkins Ave. and Delor Street (Repealed by 46610)
46116	Adds § 7-J, Ord. 45304, church stop, Morgan Ford Road and Neosho Street (Not codified)
46117	Parking, Thurman Ave. (Not codified)
46118	Parking, Hunt Ave. (Not codified)
46119	Stop intersection, Page Boulevard and Pendleton Ave. (Not codified)
46120	Designates Vernon Ave. one-way street (Not codified)
46121	Parking, Spring Ave. (Repealed by 47261)
46122	Designates Amherst Place one-way street (Not codified)
46123	Parking, trucks on Clinton Street (Not codified)
46124	School stop, Forest Park Ave. and Taylor Ave. (Not codified)
46125	Dogs; repeals Art. 2, Ch. 6, 1948 Code (Repealed by 46957)
46126	Appropriation for current expenses (Special)
46127	Establishes tax rate for 1952 (5.26.010—5.26.050)
46128	Collector of revenue employee compensation, amends § 92, Ch. 23, 1948 Code (Ch. 4.44)
46129	Dedication of sewer system (Special)
46130	Ratifies grant agreement amendment for federal aid project No. 9-23-034-006 (Special) 46131. Ratifies grant agreement for federal aid project No. 9-23-034-207 (Special)
46132	Authorizes contracts for construction of hangar at Lambert-St. Louis, Municipal Airport (Special)
46133	Authorizes contract for architect and engineering services for terminal area at Lambert-St. Louis Municipal Airport (Special)
46134	Provides for leasing of hangar to Trans World Airlines (Special)
46135	Ratifies grant agreement amendment for federal aid project No. 9-23-034-801 (Special)
46136	Authorizes contract for construction of pumping station for River Des Peres sanitary sewage (Special)
46137	Parking, Watson Road (Not codified)
46138	Authorizes contract for construction of roadways in channel of River Des Peres drainage works (Special)
46139	Authorizes contracts for repair of River Des Peres foul water sewer (Special)
46140	Authorizes contracts for reconstruction of Morgan Ford Road Bridge (Special)
46141	Parking, Hodiamont Ave. (Not codified)
46142	Designates Cote Brilliante Ave., Theodosia Ave. one-way streets (Not codified)
46143	Designates alley one-way (Not codified)

46144 Unlawful to annoy, molest, detain or divert minor (15.114)

46145 Amends § 8, Ch. 37, 1948 Code, board of merchant's and manufacturer's tax equalization (8.04.010)

46146 Sale of property (Special)

46147 Appropriation for completion of construction and equipment of health center buildings (Special)

46148 Authorizes Captain J. W. Menke to install electrical apparatus (Special)

46149 Parking, Nottingham Ave. and Donovan Ave. (Not codified)

46150 Prohibits certain commercial vehicles, Crescent Ave. (Not codified)

46151 Prohibits certain commercial vehicles, Watson Road (Not codified)

46152 Parking, Broadway (Not codified)

46153 Parking, North Market Street (Not codified)

46154 Stop intersection, Benton Street and Glasgow Ave. (Not codified)

46155 School stop, Twenty-Fifth Street and University Street (Not codified)

46156 Parking, Monroe Street (Not codified)

46157 Designates Greer Ave. one-way street (Not codified)

46158 Parking, Twenty-third Street (Repealed by 46525)

46159 Parking, Sixth Street (Not codified)

46160 Stop intersection, Second Street and Soulard Street (Not codified)

46161 Stop intersection, Ann Ave. and Mississippi Ave. (Not codified)

46162 Repeals §§ 435 and 455, Ch. 69, 1948 Code (Repealer)

46163 Parking, Miami Street (Not codified)

46164 Parking, Indiana Ave. (Not codified)

46165 Parking, Lemp Ave. (Not codified)

46166 Parking, Bent Ave. (Not codified)

46167 Parking, Bent Ave. (Not codified)

46168 Parking, Parker Ave. (Not codified)

46169 Parking, Chouteau Ave. (Repealed by 46525)

46170 Parking, Vista Ave. (Not codified)

46171 Parking, Vandeventer Ave. (Not codified)

46172 Parking, Vandeventer Ave. and Page Boulevard (Not codified)

46173 Parking, Margaretta Ave. (Not codified)

46174 Designates Leduc Street one-way street (Not codified)

46175 Stop intersection, Ashland Ave. and Taylor Ave. (Not Codified)

46176 Playground stop, Lee Ave. and Taylor Ave. (Not codified)

46177 Designates Cupples Place one-way street (Not codified)

46178 Parking, Natural Bridge Ave. (Not codified)

46179 Parking, Ridge Ave. (Not codified)

46180 Designates Oakley Place one-way street (Not codified)

46181 Stop intersection, Nottingham Ave. and Tamm Ave., Jamieson Ave. and Pernod Ave. (Not codified)

46182 Adds § 7-K, Ord. 45304, church stop, Hampton Ave., Murdoch Ave. and Sulphur Ave. (Not codified)

46183 Adds § 7-L, Ord. 45304, church stop, Arsenal Street and Leola Ave. (Not codified)

46184 Stop intersection, Aubert Ave. and Maple Ave. (Not codified)

46185 Stop intersection, Bayard Ave. and Fountain Ave. (Not codified)

46186 Parking, Dardenne Drive (Not codified)

46187 Parking, roadway or gateway entering St. Louis Administration Center or Associated Centers on Goodfellow Boulevard and Riverview Boulevard (Not codified)

46188 Parking, Penrose Street (Repealed by 48794)

46189 Parking, Penrose Street (Not codified)

46190 Parking, Kingshighway Boulevard (Repealed by 46525)

46191 Parking, Riverview Boulevard (Not codified)

46192 Amends § 1, Ord. 46034, parking, Woodland Ave. (Not codified)

46193 Designates alley one-way (Not codified)

46194 Parking, Skinker Boulevard (Repealed by 48333)

46195 Parking, Maple Ave. (Not codified)

46196 Stop intersection, Hodiamont Ave. and Horton Place (Not codified)

46197 Parking, Maple Ave. (Not codified)

46198 Parking, Skinker Boulevard and Enright Ave. (Repealed by 46525, 48333, 49171)

46199 Vacates alley (Special)

46200 Vacates alley (Special)

46201 Amends § 50, Ch. 13, 1948 Code, merchant taxes (8.56.110)

46202 Repeals Ord. 43827 (Repealer)

46203 Parking, St. Louis Ave. (Not codified)

46204 Extends effective date of Ord. 45445 as extended by Ord. 45848 (Repealed by 56797)

46205 Fixes fee for Prisoner Board for 1952 (16.12.030)

46206 Provides for election for tax increase for free public library (Special)

46207 Appropriation for acquisition of land for sewer rights-of-way (Special)

46208 Vacates Utah Street (Special)

46209 Vacates Ninth Street (Special)

46210 Adopts comprehensive compensation plan (4.10)

46211 Amends §§ 10, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25 and 30, Ch. 47, 1948 Code, city, employee vacations (4.10)

46212 Appropriation for damages (Special)

46213 Appropriation for damages (Special)

46214 Parking, Tenth Street; repeals part § 126, Ch. 69, 1948 Code (Repealed by 46525)

46215 Parking, Morgan Ford Road (Not codified)

46216 Stop intersection, Theodosia Ave. and Hodiamont Ave. (Not codified)

46217 Directs acquisition of property for construction of parking facilities (Special)

46218 Designates Marnice Place one-way street (Not codified)

46219 Stop intersection, Twenty-second Street and North Market Street (Not codified)

46220 Amends § 8, Ch. 15, 1948 Code, sessions of city courts (Repealed by 49852)

46221 Repeals Ord. 46057 (Repealer)

46222 Levies tax on salaries of individuals and net profits of businesses; repeals Art. 14, Ch. 23, J948 Code (5.22)

46223 Authorizes contracts for construction of basins, well and chemical laboratory for St. Louis water division (Special)

46224 Ratifies grant agreement for federal aid project No. 9-23-034-208 (Special)

46225 Ratifies amendment to grant agreement for federal aid project No. 9-23-034-006 (Special)

46226 Ratifies amendments for extending districts (Not codified)

46227 Vacates alley (Special)

46228 Conditional vacation, Cedar Street (Special)

46229 Vacates alley (Special)

46230 Designates Carr Street and Cole Street one-way streets, parking, same streets (Repealed by 46525)

46231 Traffic-control signals, Easton Ave. and Vandeventer Ave. (Not codified)

46232 Parking, Lucas Ave. (Not codified)

46233 Designates Laclede Ave. major street (Not codified)

46234 Stop intersection, McMillan Street and Marcus Street (Not codified)

46235 Parking, Broadway (Repealed by 46525)

46236 Traffic-control signals, Sarah Street and Finney Ave. (Not codified)

46237 Traffic-control signals, Vandeventer Ave. and Enright Ave. (Not codified)

46238	Traffic-control signals, Vandeventer Ave. and Finney Ave. (Not codified)
46239	Traffic-control signals, Page Boulevard and Sarah Street (Not codified)
46240	Parking, Eleventh Street; repeals §§ 1, 2 and 3, Ord. 45615 (Not codified)
46241	Designates Spring Ave. major street (Not codified)
46242	Stop intersection, Osceola Street and Minnesota Ave. (Not codified)
46243	Parking, Loughborough Ave. (Not codified)
46244	Parking, Florissant Ave. (Repealed by 46525, 48333)
46245	Playground stop, Broadway and Harlan Ave. (Not codified)
46246	Parking, Fourteenth Street (Not codified)
46247	Parking, Fourteenth Street and North Market Street (Not codified)
46248	Parking, Tyler Street (Not codified)
46249	Parking, Jefferson Ave. (Repealed by 48758)
46250	Stop intersection, Laurel Ave. and Wells Ave. (Not codified)
46251	Designates St. Louis Ave. major street (Not codified)
46252	Authorizes contracts for alteration of administration and ward buildings at Max C. Starkloff City Hospital (Special)
46253	Establishes tuberculosis hospital known as Robert Koch Hospital (Repealed by 54489)
46254	Amends § 419, Part 1, Vol. 2, 1948 Code, use of steel joists and cellular steel members (Repealed by 50502)
46255	Parking, Natural Bridge Ave.; repeals part of Ord. 46016 (Not codified)
46256	Playground stop, Goodfellow Ave. and St. Louis Ave. (Not codified)
46257	School stop, Childress Ave. and Murdoch Ave. (Not codified)
46258	Stop intersection, Kingshighway Boulevard and Nottingham Ave. (Not codified)
46259	Stop intersection, Pernod Ave. and Regal Place (Not codified)
46260	Stop intersection, Skinker Boulevard and Rock Island Highway (Not codified)
46261	Parking, Grape Ave. (Not codified)
46262	Parking, Taylor Ave. (Not codified)
46263	Stop intersection, West Florissant Ave. and Ruskin Ave. (Repealed by 48208)
46264	Designates Vine Grove Ave. one-way street (Not codified)
46265	School stop, St. Louis Ave. and Pendleton Way (Not codified)
46266	Adds § 7-M, Ord. 45304, church stop, Newstead Ave. and North Market Street (Not codified)
46267	School stop, Atchison Place and Carr Street (Not codified)
46268	Parking, Eighth Street (Not codified)
46269	Stop intersection, Madison Street and Twenty-third Street (Not codified)
46270	Parking, Beaumont Street (Not codified)
46271	Parking, Fifteenth Street; repeals § 546, Ch. 69, 1948 Code (Not codified)
46272	Parking, Twentieth Street (Not codified)
46273	Parking, Sixth Street (Not codified)
46274	Parking, Lafayette Ave. (Not codified)
46275	Designates Thirteenth Street one-way street (Not codified)
46276	Designates Ninth Street one-way street (Not codified)
46277	Parking, Beck Ave. (Not codified)
46278	Amends § 1950, Part 1, Vol. 2, 1948 Code, garages (Repealed by 50502)
46279	Amends § 466, Part 1, Vol. 2, 1948 Code, Class VI—type 1 structures (Repealed by 50502)
46280	Adds § 7-N, Ord. 45304, church stop, Morgan Ford Road and Tholozan Ave. (Not codified)
46281	Parking, Clark Ave. (Not codified)

46282 Amends § 1, Ord. 44184, stop intersection, Whittier Street and McPherson Ave. (Not codified)

46283 Stop intersection, Enright Ave. and Spring Ave. (Not codified)

46284 Parking, Elmbank Ave. (Repealed by 50637)

46285 Designates Northland Ave. one-way street (Not codified)

46286 Stop intersection, Hamilton Boulevard and Plymouth Ave. (Not codified)

46287 Church stop, Goodfellow Boulevard and Wells Ave. (Not codified)

46288 Church stop, Goodfellow Boulevard and Romaine Place (Not codified)

46289 Parking, Goodfellow Boulevard (Repealed by 46525)

46290 Repeals Ord. 45987 (Repealer)

46291 Stop intersection, Belt Ave. and Ashland Ave. (Not codified)

46292 Parking, Lotus Ave. (Not codified)

46293 Parking, Plymouth Ave. (Not codified)

46294 School stop, Hampton Ave. and Devonshire Ave. (Not codified)

46295 Stop intersection, Macklind Ave. and Pernod Ave. (Not codified)

46296 Stop intersection, Missouri Ave. and Allen Ave. (Not codified)

46297 Traffic movement, Manchester Ave. (Not codified)

46298 Parking, Macklind Ave. (Not codified)

46299 Parking, Manchester Ave. (Not codified)

46300 School stop, Edwards Street, Wilson Ave. and Macklind Ave. (Not codified)

46301 Stop intersection, Wilson Ave. and Macklind Ave. (Not codified)

46302 Designates Oakview Place one-way street (Not codified)

46303 School stop, Tamm Ave. and Wade Ave. (Not codified)

46304 Designates South Magnolia Ave., North Magnolia Ave. and Pearl Ave. one-way streets (Not codified)

46305 Parking, Bircher Boulevard (Not codified)

46306 Parking, Elward Ave. (Repealed by 49258)

46307 Parking, Margaretta Ave. (Repealed by 48799)

46308 Amends Part 3, 1948 Code, extends "H" commercial district (Special)

46309 Amends Part 3, 1948 Code, extends "B" two-family dwelling district (Special)

46310 Amends Part 3, 1948 Code, extends. "G" commercial district (Special)

46311 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

46312 Sale of property (Special)

46313 Sale of property (Special)

46314 Sale of property (Special)

46315 Sale of property (Special)

46316 Appropriation for changing western approach of Flyer Ave. viaduct (Special)

46317 Sale of property (Special)

46318 Sale of property (Special)

46319 Sale of property (Special)

46320 Appropriation for damages (Special)

46321 Appropriation for damages (Special)

46322 Appropriation for damages (Special)

46323 Appropriation for damages (Special)

46324 Vacates alley (Special)

46325 Amends §§ 1, 8 and 9, conditional vacation; repeals §§ 6 and 7, Ord. 46003 (Special)

46326 Appropriation for certificates of title, appraisals and other costs for acquisition of land for airport extension (Special)

46327 Authorizes contracts for terminal area at Lambert-St. Louis Municipal Airport (Special)

46328 Authorizes contracts for pumping unit, basins and conduits at Howard Bend pumping station (Special)

46329 Authorizes contracts for pumps and equipment at St. Louis water division (Special)

46330 Authorizes contracts for incandescent lamps (Special)

46331 Authorizes contracts for discharge of sewage into city system (Special)

46332 Authorizes contracts for discharge of sewage into city system (Special)

46333 Designates alley from Thirteenth Street to alley in block 589-N one-way (Not codified)

46334 Amends § 1, Ord. 46210, comprehensive compensation plan (4.10)

46335 Coroner and morgue employee salaries; repeals Ord. 45618 (Repealed by 47549)

46336 Amends §§ 19 and 21, Ch. 2, 1948 Code, Board of Aldermen employee salaries; repeals Ord. 45486 and Ord. 45559 (Repealed by 48611, 50052, 50574, 52743, 53377)

46337 House of detention employee appointment (Repealed by 47796)

46338 Speed limit, Red Feather Express Highway; repeals part § 35, Ch. 69, 1948 Code (Repealed by 57831)

46339 Authorizes contracts for improvement of Jamieson Ave. (Special)

46340 Authorizes contracts for improvement of Weber Road (Special)

46341 Authorizes contracts for reconstruction of center portion of Kingshighway Boulevard (Special)

46342 Establishes pedestrian midways (Repealed by 57831)

46343 Stop intersection, Seven Boulevard and alley between Lynch Street and Sidney Street (Repealed by 49744)

46344 Stop intersection, Clay Ave. and Penrose Street (Not codified)

46345 Traffic-control signals, Page Boulevard and Walton Ave. (Not codified)

46346 Stop intersection, McMillan Ave. and Marcus Ave. (Not codified)

46347 Stop intersection, Finney Ave. and Whittier Street (Not codified)

46348 Stop intersection, Easton Ave. and Thomas Street, repeals § 1668, Ch. 69, 1948 Code (Not codified)

46349 Parking, Brannon Ave. (Not codified)

46350 Stop intersection, Donovan Ave. and Eichelberger Street (Not codified)

46351 Parking, Sulphur Ave. (Not codified)

46352 School stop, Kingshighway Boulevard and Fountain Ave. (Not codified)

46353 School stop, Easton Ave. and Academy Ave. (Not codified)

46354 Parking, Plover Ave. (Repealed by 48807)

46355 Stop intersection, Euclid Ave. and Penrose Street (Not codified)

46356 Parking, Grimshaw Ave. (Repealed by 48800)

46357 Parking, Genevieve Ave. (Repealed by 48806)

46358 Parking, Lilian Ave. (Not codified)

46359 Parking, Hamilton Ave. (Not codified)

46360 Parking, Skinker Boulevard (Repealed by 48333)

46361 Parking, Broadway (Not codified)

46362 Stop intersection, De Sotan Ave. and Twentieth Street (Not codified)

46363 Amends § 768, Part 1, Vol. 2, 1948 Code, masts on roofs or projecting from structures (Repealed by 50502)

46364 Amends § 888, Part 1, Vol. 2, 1948 Code, glass blocks (Repealed by 50502)

46365 Amends Part. 3, 1948 Code, extends "K" unrestricted district (Special)

46366 Designates Taylor Ave. major street (Not codified)

46367 Stop intersection, Clark Ave. and Fourteenth Street (Not codified)

46368 Playground stop, Fourth Street and Victor Street (Not codified)

46369 School stop, Jamieson Ave. and Rhodes Ave. (Not codified)

46370 Stop intersection, Gardenville Ave. and Goethe Ave. (Not codified)

46371 School stop, Morgan Ford Road and Robert Ave. (Not codified)

46372 Playground stop, Brannon Ave. and Potomac Street (Not codified)

46373 Stop intersection, Brannon Ave. and Fyler Ave; repeals Ord. 4452 (Not codified)

46374 Parking, Vandeventer Ave. (Not codified)

46375 Parking, Tower Grove Place (Not codified)

46376 Designates Shawmut Place one-way street, parking (Not codified)

46377 Parking, Natural Bridge Ave. (Not codified)

46378 Designates Rowan Ave. and Laurel Street one-way streets (Not codified)

46379 Stop intersection, Goodfellow Ave. and Wells Ave. (Not codified)

46380 Stop intersection, Burd Ave. and Wabada Ave. (Not codified)

46381 Designates Botanical Ave. one-way street (Not codified)

46382 Designates Art Hill Place one-way street (Not codified)

46383 Stop intersection, Kensington Ave. and Clarendon Ave. (Not codified)

46384 Stop intersection, Natural Bridge Ave. and Siemers Lane (Repealed by 47906)

46385 Vacates alley (Special)

46386 Authorizes Monsanto Chemical Co. to install electrical apparatus (Special)

46387 Establishes Morgan Ford Road46414 (Special)

46388 Stop intersection, Rosalie Ave. and Holly Ave. (Not codified)

46389 Conditional vacation, Winona Ave. (Special)

46390 Vacates alley (Special)

46391 Parking, Fourth Street (Repealed by 46566)

46392 Vacates Luther Ave. (Special)

46393 Establishes Robert Ave. (Special)

46394 Repeals Ord. 45363 (Repealer)

46395 Amends § 1957, Part 1, Vol. 2, 1948 Code, vehicle ramps and elevators (Repealed by 50502)

46396 Parking, Hodiamont Ave. (Not codified)

46397 Stop intersection, Belt Ave. and Wabada Ave. (Not codified)

46398 Authorizes contracts for construction of pumping station for River Des Peres sanitary sewage (Special)

46399 Regulates service cars; repeals §§ 13—42, Ch. 65, 1948 Code (8.98.545—8.98.685)

46400 Provides election to rescind authority to issue unissued bonds (Special)

46401 Provides election for incurring indebtedness for acquiring land for park and recreation area (Special)

46402 Parking, Cass Ave. (Not codified)

46403 Stop intersection, East Jamieson Ave., Jamieson Ave., Highfield Place and Willmore Road (Not codified)

46404 Adds § 7-0, Ord. 45304, church stop, Lafayette Ave. and Longfellow Place (Not codified)

46405 Stop intersection, Arkansas Ave. and Magnolia Ave. (Not codified)

46406 Stop intersection, Missouri Ave. and Geyer Ave. (Not codified)

46407 Stop intersection, Koeln Ave. and Michigan Ave. (Not codified)

46408 Parking, Spring Ave. (Not codified)

46409 Parking, West Park Ave. (Not codified)

46410 Church stop, Blow Street and Virginia Ave. (Not codified)

46411 Church stop, Broadway and Mount Pleasant Street (Not codified)

46412 Designates Quincy Street one-way street (Not codified)

46413 Stop intersection, Folsom Ave. and Lawrence Street (Not codified)

46414 Adds § 7-P, Ord. 45304, church stop, Union Boulevard and Enright Ave. (Not codified)

46415 Parking, Penrose Street (Repealed by 49280)

46416 Parking, Edelle Ave. (Not codified)

46417 Stop intersection, Goodfellow Boulevard and Stratford Ave. (Repealed by 48788)

46418 Traffic-control signals, Riverview Boulevard and West Florissant Ave. (Not codified)

46419 Appropriation for damages (Special)

46420 Appropriation for damages (Special)

46421 School stop, Lafayette Ave. and Longfellow Place (Not codified)

46422 Sale of property (Special)

46423 Sale of property (Special)

46424 Sale of property (Special)

46425 Vacates alley (Special)

46426 Amends §§ 35 and 39, Ch. 60, 1948 Code, board of commissioners of Bryan Mullanphy Emigrant and Travelers Relief Fund secretary salary and duties (Repealed by 50577)

46427 Conditional vacation, portion of River Des Peres Park (Special)

46428 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

46429 Addition to Lambert-St. Louis Municipal Airport (Special) (18.04.030C)

46430 Assistant Circuit Attorneys salaries (4.10)

46431 Ratifies amendment to grant agreement for federal aid project No. 9-23-034-208 (special)

46432 Amends §§ 58—73, Ch. 13, 1948 Code; adds § 73-A; amends Ord. 44797 and 45178, cigarette stamp tax (4.28.010, 8.10)

46433 Fire lane, alley (Not codified)

46434 Grade of Jamieson Ave. (Special)

46435 Alley improvement (Special)

46436 Alley improvement (Special)

46437 Vacates alley (Special)

46438 Vacates alley (Special)

46439 Establishes alley (Special)

46440 Vacates walk (Special)

46441 Stop intersection, Taft Ave. and Virginia Ave.; repeals Ord. 45134 (Repealed by 50384)

46442 Designates Meramec Street major street (Not codified)

46443 Stop intersection, Gustine Ave. and Meramec Street, repeals Ord. 45435 (Not codified)

46444 Stop intersection, Laclede Ave. and Sarah Street (Not codified)

46445 Designates Horton Place one-way street (Not codified)

46446 Traffic-control signals, Delmar Boulevard and Des Peres Ave. (Not codified)

46447 Parking, Thirteenth Street (Not codified)

46448 Stop intersection, Eleventh Street and Allen Ave. (Not codified)

46449 Amends § 71, Ch. 67, 1948 Code, city athletic commnission (3.58.070)

46450 Stop intersection, St. George Street and Third Street (Not codified)

46451 Stop intersection, Minnesota Ave. and Pestalozzi Street (Not codified)

46452 Parking, Ninth Street (Not codified)

46453 Stop intersection, Iowa Ave. and Wyoming Street (Not codified)

46454 Changes Delor Court to River Bluff Place (Repealed by 46586)

46455 Parking, Flad Ave. (Not codified)

46456 Parking, Virginia Ave. (Not codified)

46457 Parking, Manchester Ave. (Not codified)

46458 School stop, West Florissant Ave. and Emerson Ave. (Repealed by 50103)

46459 Stop intersection, Clara Ave. and Chamberlain Ave. (Not codified)

46460 Parking, Chippewa Street (Not codified)

46461 Sale of property (Special)

46462 Additional appropriation for personal services for circuit court (Special)

46463 Amends Part 3, 1948 Code, extends "F" local business district (Special)

46464 Amends Part 3, 1948 Code, extends "F" local business district (Special)

46465 Appropriation for current expenses (Special)

46466 Sale of property (Special)

46467 Sale of property (Special)

46468	Sale of property (Special)
46469	Sale of property (Special)
46470	Authorizes dedication of land (Special)
46471	Amends Part 3, 1948 Code, extends "F" local business district and "D" multiple dwelling district (Special)
46472	Amends Ord. 46084, establishment of park and recreation facilities (Special)
46473	Amends § 19 A, Ord. 45309, board of adjustment (26.84.010—26.84.050)
46474	School stop, North Florissant Ave. and Bremen Ave. (Not codified)
46475	Parking, Holly Hills Ave. (Repealed by 47851)
46476	Amends § 2, Ord. 45016, magistrate court employees salaries (4.24.010)
46477	Amends § 2, Ord. 44997, magistrate court employees salaries (4.24.010)
46478	Appropriation for damages (Special)
46479	Appropriation for damages (Special)
46480	Appropriation for damages (Special)
46481	Appropriation for damages (Special)
46482	Sale of property (Special)
46483	Sale of property (Special)
46484	Appropriation for acquisition of land for opening and widening streets and alleys (Special)
46485	Amends Part 3, 1948 Code, extends "H" commercial district (Special)
46486	Designates Jefferson Ave. major street (Not codified)
46487	Provides for construction of sewers (Repealed by 46904)
46488	Provides for construction of sewers (Special)
46489	Provides for construction of sewers (Special)
46490	Stop intersection, Dickson Street and Glasgow Ave. (Not codified)
46491	Adds § 7-Q, Ord. 45304, church stop, Bell Ave. and Cardinal Ave. (Not codified)
46492	Designates Bell Ave. and Beaumont Ave. one-way streets and parking thereon (Not codified)
46493	Parking, Jefferson Ave. (Not codified)
46494	Authorizes Monsanto Chemical Co. to install electrical apparatus (Special)
46495	Establishes Poepping Street (Special)
46496	Authorizes Cleveland Diesel Engine Division — General Motors Corp. to install electrical apparatus (Special)
46497	Approves final redevelopment plan for St. Louis project A (Special)
46498	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
46499	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
46500	Sale of property (Special)
46501	Dedication of portion of Grover Road (Special)
46502	Sale of property (Special)
46503	Amends § 59 c, Ord. 46432, inspectors salary (4.28.010) (8.10.020)
46504	Amends Part 3, 1948 Code, extends "D" multiple family dwelling district (Special)
46505	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
46506	Designates Glasgow Ave. one-way street (Not codified)
46507	School stop, Newstead Ave. and Sacramento Ave. (Repealed by 47580)
46508	Stop intersection, Marcus Ave. and Lewis Place (Not codified)
46509	Parking, Jefferson Ave. (Not codified)
46510	Amends Part 3, 1948 Code, changes zoning to "D" multiple dwelling district (Special)
46511	Amends Part 3, 1948 Code, changes zoning to "C" four-family dwelling district (Special)
46512	Amends Part 3, 1948 Code, extends "F" local business district (Special)
46513	Amends Part 3, 1948 Code, extends "F" local business district (Special)
46514	Amends Part 3, 1948 Code, extends "G" commercial district (Special)

46515 Amends Part 3, 1948 Code, extends "B" two-family dwelling district (Special)

46516 Vacates alley (Special)

46517 Authorizes contracts for reconstruction of Maline Creek channel and foul water sewer (Special)

46518 Establishes alley (Special)

46519 Vacates Rosalie Street (Special)

46520 Vacates alley (Special)

46521 Vacates alley (Special)

46522 Vacates alley (Special)

46523 Vacates alley (Special)

46524 Designates Lotus Ave. one-way street (Not codified)

46525 Parking on certain streets, designates certain streets one-way streets, designates Pine Street major street, repeals §§ 84, 87, 91, 96, 98, 103, 105, 112, 116, 117, 118, 126, 128, 136, 138, 139, 140, 141, 142, 14i, 144, 148, 150, 153, 155, 159, 174, 178, 179, 180, 181, 182, 183, 188, 189, 202, 203, 204, 208, 210, 211, 212, 213, 214, 215, 216, 218, 219, 220, 221, 222, 226, 227, 228, 230, 233, 235, 236, 237, 240, 243, 244, 245, 246, 247, 248, 251, 261, 262, 263, 266, 267, 268, 272, 273, 274, 275, 276, 277, 278, 280, 282, 284, 285, 288, 289, 315, 320, 324, 328, 330, 333, 335, 336, 337, 343, 348, 354, 357, 358, 361, 363, 365, 366, 378, 379, 380, 381, 417, 419, 420, 421, 422, 423, 428, 429, 295, 541 and 2151, 1948 Code, Ords. 41878, 42153, 42355, 42370, 43968, 44024, 44688, 44710, 44814, 44892, 44893, 44897, 44911, 44955, 44961, 45028, 45044, 45048, 45052, 45053, 45108, 45130, 45135, 45187, 45189, 45261, 45266, 45273, 45275, 45306, 45333, 45355, 45360, 45368, 45399, 45416, 45425, 45458, 45459, 45460, 45463, 45491, 45497, 45498, 45500, 45503, 45521, 45525, 45531, 45550, 45568, 45573, 45586, 45589, 45593, 45601, 45615, 45617, 45633, 45634, 45635, 45638, 45639, 45642, 45676, 45693, 45694, 45695, 45720, 45725, 45733, 45737, 45758, 45769, 45779, 45803, 45823, 45864, 45866, 45868, 45872, 45875, 45897, 45901, 45904, 45906, 45918, 45935, 45962, 45963, 46016, 46020, 46025, 46041, 46042, 46049, 46075, 46109, 46158, 46169, 46190, 46198, 46214, 46230, 46235, 46244, 46289, 42299, 45727 and 46052 (Not codified)

46526 Amends Part 3, 1948 Code, extends "F" local business district (Special)

46527 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

46528 Repeals § 48, Ch. 72, 1948 Code, public scales (Repealer)

46529 Parking, Morin Ave. (Not codified)

46530 Stop intersection, Broadway and North Market Street (Not codified)

46531 Designates Seventeenth Street one-way street (Not codified)

46532 Parking, Rutger Street and Vista Ave. (Not codified)

46533 School stop, West Belle Place (Not codified)

46534 School stop, Vandeventer Ave. and Ashland Ave. (Not codified)

46535 Playground stop, Goodfellow Boulevard and Labadie Ave. (Not codified)

46536 Adds § 7-R, Ord. 45304, church stop, Kingshighway Boulevard, McPherson Ave. and Westminster Place (Not codified)

46537 School stop, Union Boulevard and Harney Ave. (Not codified)

46538 Traffic-control signals, Goodfellow Boulevard and West Florissant Ave. (Not codified)

46539 Stop intersection, Goodfellow Boulevard and Emma Ave. (Repealed by 49081)

46540 Appropriation to put master traffic-control plan into effect (Special)

46541 Amends § 7, Part 3, Vol. 2, 1948 Code, lodging for compensation in "A" single-family and "B" two-family dwelling districts, repeals Ord. 45817 (Expired)

46542 Sale of property (Special)

46543 Appropriation for city's share of cost of acquiring right-of-way for north branch of Third Street interregional highway (Special)

46544 Parking, Poplar Street (Not codified)

46545 Parking, Cedar Street (Not codified)

46546 Parking, Victor Street (Not codified)

46547 Parking, Hodiamont Ave. and Julian Ave. (Repealed by 48333)

46548 Stop intersection, Kingshighway Boulevard and Sutherland Ave., repeals Ord. 45591 and § 1968, Ch. 69, 1948 Code (Not codified)

46549 Stop intersection, Forest Ave. and Mitchell Ave. (Not codified)

46550 Stop intersection, Tamm Ave. and Oakland Ave. (Not codified)

46551 Stop intersection, Westminster Place and Lake Ave. (Not codified)

46552 Prohibits certain commercial vehicles, Waterman Boulevard (Not codified)

46553 Sale of property (Special)

46554 Sale of property (Special)

46555 Sale of property (Special)

46556 Sale of property (Special)

46557 Sale of property (Special)

46558 Provides for construction of sewers (Special)

46559 Authorizes contracts for improvement of cutoff for Twelfth Street (Special)

46560 Regulates type of traffic and vehicles on Maffitt Place (Not codified)

46561 Parking, Hartford Street (Not codified)

46562 Parking, Ninth Street (Not codified)

46563 Stop intersection, North Market Street and Warne Ave. (Not codified)

46564 Parking, Chambers Street (Not codified)

46565 Parking, Eleventh Street (Not codified)

46566 Parking, Fourth Street, repeals Ord. 46391 (Not codified)

46567 Designates Magnolia Ave. major street (Not codified)

46568 Sale of property (Special)

46569 Sale of property (Special)

46570 Traffic-control signals, Chippewa Street and Macklind Ave. (Not codified)

46571 Stop intersection, Lansdowne Ave. and McCausland Ave. (Not codified)

46572 Designates Wilson Ave. one-way street (Not codified)

46573 Sale of property (Special)

46574 Sale of property (Special)

46575 Stop intersection, Alabama Ave. and Weber Road (Not codified)

46576 Appropriation for damages (Special)

46577 Appropriation for damages (Special)

46578 Amends § 1, Ord. 45372, parking, Ashland Ave. (Not codified)

46579 Designates Woodland Ave. one-way street (Not codified)

46580 Parking, Vandeventer Ave. (Not codified)

46581 Vacates Howel Street (Special)

46582 Vacates various streets and alleys (Special)

46583 Amends § 8, Ch. 10, 1948 Code, adds § 8A, Ch. 10, 1948 Code, embalmer's permit (8.38.020)

46584 Establishes Elizabeth Ave. (Special)

46585 Vacates easement from Kinsey Place to Westway Place and from Westway Place to easement, block 6366 (Special)

46586 Changes Delor Court to River Bluff Place (Special)

46587 Establishes Clarence Ave. (Special)

46588 Vacates alley (Special)

46589 Repeals §§ 952, 953, 954, 955, 956, 957, 958, 959, 960, 961, 963, 969, 994, 998, 1002, 1004, 1007, 1016, 1017, and 1031, Part 1, Vol. 2, 1948 Code, adds §§ 952, 963, 969, 994, 998, 1002, 1004, 1007, 1016, 1017 and 1031, heating systems (Repealed by 50502)

46590 Amends § 67, Part 1, Vol. 2, 1948 Code, unsafe buildings, trees and dangerous conditions (Repealed by 50502)

46591 Repeals §§ 19 and 20, Ch. 7, 1948 Code, adds §§ 19—25, Ch. 7, 1948 Code, auction sales of jewelry and silverware (Not codified)

46592 Parking, Hodiamont Ave. and Julian Ave. (Repealed by 48333)

46593 Appropriation for current expenses (Special)

46594 Tax rate for 1953 (5.26.010—5.26.050)

46595 Appropriation for damages (Special)

46596 Appropriation for settlement of claims (Special)

46597 Appropriation for damages (Special)

46598 Appropriation for damages (Special)

46599 Fixes fee for prisoner board for 1953 (16.12.030)

46600 Appropriation for damages (Special)

46601 Fire lanes, Gratiot Street, Second Street, repeals §§ 577, 719, Ch. 69, 1948 Code, part of § 576, Ch. 69, 1948 Code (Not codified)

46602 Extends effective date of Ord. 45445, hospitals (Not codified)

46603 Parking, Vandeventer Ave. (Not codified)

46604 Parking, Easton Ave. (Not codified)

46605 Changes Wagner Terrace to Ryan Terrace (Special)

46606 Traffic-control signal, Baden Ave. and Broadway (Not codified)

46607 Parking, Ninth Street and Labeaume Street (Not codified)

46608 Amends § 1, Ord. 46565, parking, Eleventh Street (Not codified)

46609 Parking, Twelfth Street (Not codified)

46610 School stop, Adkins Ave. and Delor Street, repeals Ord. 46115 (Not codified)

46611 Parking, Accomac Street (Not codified)

46612 Adds §§ 7-S and 7-T, Ord. 45304, church stops, Marcus Ave. and Page Boulevard, Page Boulevard and West End Ave. (Not codified)

46613 Parking, Hebert Street (Not codified)

46614 Designates Wabada Ave. and Montclair Ave. one-way streets, parking thereon (Not codified)

46615 Designates Wilson Ave. one-way street, parking thereon (Not codified)

46616 Amends § 1, Ord. 44706, parking, Wilson Ave. (Repealed by 48470)

46617 Parking, Waldemar Ave. (Not codified)

46618 Parking, West Park Ave. (Not codified)

46619 Amends § 1, Ord. 46192, parking, Woodland Ave. (Repealed by 58803)

46620 Parking, Gravois Ave. (Not codified)

46621 Amends § 1, Ord. 45711, parking, Thrush Ave. (Repealed by 48802)

46622 Parking, Plover Ave. (Not codified)

46623 Parking, Amelia Ave. (Repealed by 49079)

46624 Authorizes contracts for construction of Vista Ave. branch, Tower Grove-Manchester Road relief sewers (Special)

46625 Alleys improvement (Special)

46626 Alley improvement (Special)

46627 Alley improvement (Special)

46628 Parking, Chouteau Ave. (Not codified)

46629 Stop intersection, Lesperance Street and Second Street (Not codified)

46630 Parking, Magnolia Ave. (Not codified)

46631 Vacates Josephine Street (Special)

46632 Establishes Ellendale Place (Special)

46633 Vacates alley (Special)

46634 Amends § 1, Ord. 46495, establishes Poepping Street (Special)

46635 Establishes alley, block 5770-N (Special)

46636 Repeals Ord. 46060, grade for Ridgewood Ave. (Repealer)

46637 Conditional vacation, Gladys Ave. (Special)

46638 Adds § 7-U, Ord. 45304, church stop, Oleatha Ave. and Watson Road (Special)

46639 Prohibits certain commercial vehicles on Arsenal Street (Not codified)

46640 Stop intersection, Salisbury Street and Twenty-fifth Street (Not codified)

46641 Parking, Jefferson Ave. (Not codified)

46642 Parking, Allen Market Lane, repeals Ord. 43927 (Not codified)

46643 Parking, Loughborough Ave. (Not codified)

46644 Parking, Talmage Ave. (Repealed by 49518)

46645 Parking, Chouteau Ave. (Repealed by 49520)

46646 Parking, Boyle Ave. (Repealed by 49907)

46647 Parking, Kentucky Ave. (Repealed by 49519)

46648 Designates School Street one-way street (Not codified)

46649 Stop intersection, Brannon Ave. and Devonshire Ave. (Not codified)

46650 Stop intersection, Prather Ave. and Lindenwood Place (Not codified)

46651 Parking, Darby Street (Repealed by 48790)

46652 Stop intersections, Dressel Ave., Elward Ave. and Goodfellow Boulevard, Goodfellow Boulevard and gates no. 1, 3, and 6 of St. Louis Ordnance Plant (Not codified)

46653 Provides for election for incurring indebtedness and issuance of bonds for acquiring land for park and recreation area (Special)

46654 Ratifies grant agreement for federal aid project no. 9-23-034-309 (Special)

46655 Appropriation for completion of hangar at Lambert-St. Louis Municipal Airport (Special)

46656 Appropriation for terminal area at Lambert-St. Louis Municipal Airport (Special)

46657 Parking, Wise Ave. and Macklind Ave. (Not codified)

46658 Parking, Chouteau Ave. (Not codified)

46659 Traffic-control signals, various intersections (Not codified)

46660 Traffic-control signals, various intersections (Not codified)

46661 Parking, Clarence Ave. and Lambdin Ave. (Not codified)

46662 Designates Twentieth Street major street (Not codified)

46663 Parking, Thirteenth Street (Not codified)

46664 Adds § 7-V, Ord. 45304, church stop, Bellerive Boulevard and Colorado Ave. (Not codified)

46665 Parking, Gravois Ave. (Not codified)

46666 Prohibits certain commercial vehicles on Sulphur Ave. (Not codified)

46667 Stop intersection, Manchester Ave. and Mitchell Ave. (Repealed by 49595)

46668 Stop intersection, Taylor Ave. and Westminster Place (Not codified)

46669 Parking, San Francisco Ave. (Not codified)

46670 Parking, Wren Ave., repeals § 1, Ord. 45880 (Not codified)

46671 Stop intersection, Acme Ave. and Lena Ave. (Repealed by 48781)

46672 Traffic-control signals, various intersections (Not codified)

46673 Designates alley from Clara Ave. to Goodfellow Ave. one-way (Not codified)

46674 Stop intersection, West Florissant Ave. and Harris Ave. (Not codified)

46675 Repeals Ord. 45933, stop intersection, West Florissant Ave. and Fair Ave. (Repealer)

46676 Stop intersection, Benton Street and Hadley Street (Not codified)

46677 Designates Kennerly Ave. one-way street (Not codified)

46678 Parking, St. Ange Ave. and Frey Ave. (Not codified)

46679 Stop intersection, Thirteenth Street and Lynch Street (Not codified)

46680 Repeals part Ord. 45495, parking, Thirteenth Street (Repealer)

46681 Stop intersection, Broadway and south drive of River Des Peres drainage channel (Not codified)

46682 Parking, Poepping Street (Not codified)

46683 Stop intersection, Arsenal Street and south entrance to Tower Grove Park (Not codified)

46684 Adds § 7-W, Ord 45034, church stop, Connecticut Street and Oak Hill Ave. (Not codified)

46685 Establishes January Ave. (Special)

46686 Parking, Boyle Ave. (Repealed by 49907)

46687 Traffic ordinance amends Ch. 69, 1948 Code (Repealed by 57831)

46688 Establishes civil defense, repeals Ord. 45485 (Repealed by 56848)

46689 Authorizes contract with state highway commission for establishment of state highway (Special)

46690 Authorizes contract with state highway commission for separation of grades between Market Street and Grand Ave. (Special)

46691 Authorizes contract with state highway commission for establishment of state highway (Special)

46692 Vacates Carondelet Road or Southern State Road (Special)

46693 Amends § 275, Part 1, Vol. 2, 1948 Code, extends fire limits (Repealed by 50502)

46694 Amends § 1957, Part 1, Vol. 2, 1948 Code, vehicle ramps and elevators (Repealed by 50502)

46695 Appropriation for damages (Special)

46696 Sale of property (Special)

46697 Sale of property (Special)

46698 Sale of property (Special)

46699 Sale of property (Special)

46700 Appropriation for damages (Special)

46701 Sale of property (Special)

46702 Directs issuance of bonds (Special)

46703 Sale of property (Special)

46704 Sale of property (Special)

46705 Authorizes contract to discharge sewer into city system (Special)

46706 Conditional alley vacation (Special)

46707 Parking, Fourth Street, repeals part paragraph 4, § 5, Ord. 46525 (Not codified)

46708 Parking, Locust Boulevard, designates Locust Boulevard one-way street (Not codified)

46709 Parking, Sixth Street (Not codified)

46710 Establishes Eighteenth Street (Special)

46711 Stop intersection, Park Lane and Switzer Ave. (Repealed by 49235)

46712 Parking, Osceola Street (Not codified)

46713 Prohibits certain commercial vehicles on Ellendale Ave., Fyler Ave. and Pernod Ave. (Not codified)

46714 Stop intersection, Ivanhoe Ave. and Pernod Ave. (Not codified)

46715 Playground stops, Jamieson Ave. and Lindenwood Place, Pernod Ave. and Prather Ave. (Not codified)

46716 Establishes Jefferson Ave. (Special)

46717 Establishes Jefferson Ave. (Special)

46718 Sale of property (Special)

46719 Sale of property (Special)

46720 Sale of property (Special)

46721 Appropriation for damages (Special)

46722 Sale of property (Special)

46723 Stop intersection, Penrose Street and Dressell Ave. (Repealed by 48782)

46724 Stop intersection, Beacon Ave. and Thekla Ave. (Not codified)

46725 Stop intersection, Evans Ave. and Whittier Street, repeals § 2052, Ch. 69, 1948 Code (Not codified)

46726 Stop intersection, Easton Ave. and Whittier Street, repeals § 2051, Ch. 69, 1948 Code (Not codified)

46727 Parking, Murdoch Ave. (Not codified)

46728 Parking, Botanical Ave. (Not codified)

46729 Parking, Hickory Street (Not codified)

46730 Playground stop, Evans Ave. and Sarah Street (Not codified)

46731	Adds § 7-X, Ord. 45304, church stop, Jefferson Ave. and Potomac Street (Not codified)
46732	School stop, Faderer Street and Morgan Ford Road (Not codified)
46733	Vacates Jamieson Ave. (Special)
46734	Repeals Ord. 45377, parking, Hadley Street (Repealer)
46735	Adds § 7-Z, Ord. 45304, church stop, Jefferson Ave. and Stoddard Street (Not codified)
46736	Alley improvement (Special)
46737	Appropriation for investigating city contracts (Special)
46738	Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)
46739	Vacates Van Buren Street (Special)
46740	Vacates alley from Spruce Street to alley (Special)
46741	Stop intersection, McCousland Ave. and Pernod Ave. (Not codified)
46742	Designates Wise Ave. one-way street (Not codified)
46743	Stop intersection, Lee Ave. and Prairie Ave. (Not codified)
46744	Stop intersection, Arlington and Minerva Aves. (Not codified)
46745	School stop, West Florissant Ave. and Fair Ave. (Not codified)
46746	Stop intersection, Broadway and Taylor Ave. (Not codified)
46747	School stop, North Florissant Ave. and Bissell Street (Not codified)
46748	Playground stop, Blair Ave. and Angelica Street (Not codified)
46749	Stop intersection, O'Fallon Street and Tenth Street, repeals § 1975, Ch. 69, 1948 Code (Not codified)
46750	Parking, Spruce Street (Not codified)
46751	Traffic-control signals, Devolsey Street and Gravois Ave. (Not codified)
46752	Stop intersection, Second Street and Russell Ave. (Not codified)
46753	Stop intersection, Third Street and Russell Boulevard (Not codified)
46754	School stops, Meramec Street and Michigan Ave., Meramec Street and Minnesota Ave. (Not codified)
46755	Parking, West Pine boulevard (Not codified)
46756	Traffic-control signals, Grand Boulevard and Olive Street (Not codified)
46757	Stop intersection, Geyer Ave. and Ohio Ave. (Not codified)
46758	Parking, Thirteenth Street (Not codified)
46759	Amends §§ 47 and 49, Ch. 13, 1948 Code, taxation of merchants (8.56.100, 8.56.190)
46760	Amends § 1, Ch. 9, 1948 Code, public bathhouses (Ch. 8.24)
46761	Amends §§ 1346 and 1373, Part 1, Vol. 2, 1948 Code, air conditioning (Repealed by 50502)
46762	Authorizes contracts for construction at Chain of Rocks waterworks (Special)
46763	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
46764	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
46765	Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)
46766	Designates Davison Ave. one-way street (Not codified)
46767	Parking, Oleatha Ave. (Not codified)
46768	Traffic-control signals, Fyler Ave. and Kingshighway Boulevard, Kingshighway Boulevard and Oleatha Ave. (Not codified)
46769	Stop intersection, Delmar Boulevard and Garrison Ave. (Not codified)
46770	School stop, Bell Ave. and Leonard Ave. (Not codified)
46771	School stops, Clifton Ave. and Holly Hills Ave., Morgan Ford Road and Toenges Ave. (Not codified)

46772 Adds § 7-Y, Ord. 45304, church stop, Kingshighway Boulevard and Schollmeyer Ave. (Not codified)

46773 Stop intersection, Gresham Street and January Ave. (Not codified)

46774 Stop intersection, Laurel Street and DeGiverville Ave. (Not codified)

46775 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

46776 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

46777 Amends Part 3, 1948 Code, changes zoning to "C" four-family dwelling district (Special)

46778 Amends Part 3, 1948 Code, changes zoning to "C" four-family dwelling district (Special)

46779 Amends Part 3, 1948 Code, changes zoning to "C" four-family dwelling district (Special)

46780 Amends § 1, Ord. 45214, contracts for roadway pavement (Special)

46781 Appointment of offstreet parking commission (Repealed by 57831)

46782 Vacates alley from Wren Ave. to line (Special)

46783 Vacates alley (Special)

46784 Designates Temple Place one-way street (Not codified)

46785 Parking, Lismore Street and Hebert Street (Not codified)

46786 Prohibits certain commercial vehicles on Lansdowne Ave. (Repealed by 49984)

46787 Amends § 275, Part 1, Vol. 2, extends fire limits (Repealed by 50502)

46788 Appropriation for expenses for acquisition of land for opening and widening streets and alleys (Special)

46789 Appropriation for damages (Special)

46790 Appropriation for fees for acquisition of land for extension of public airports (Special)

46791 Appropriation for damages (Special)

46792 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

46793 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

46794 Authorizes contract with city of Webster Groves for sale of excess city water (Special)

46795 Declares result of election to borrow money and issue bonds (Special)

46796 Authorizes contracts for recreation facilities (Special)

46797 Sale of property (Special)

46798 Sale of property (Special)

46799 Sale of property (Special)

46800 Sale of property (Special)

46801 Sale of property (Special)

46802 Sale of property (Special)

46803 Sale of property (Special)

46804 Sale of property (Special)

46805 Sale of property (Special)

46806 Sale of property (Special)

46807 Sale of property (Special)

46808 Sale of property (Special)

46809 Sale of property (Special)

46810 Sale of property (Special)

46811 Sale of property (Special)

46812 Sale of property (Special)

46813 Sale of property (Repealed by 49715)

46814 Sale of property (Special)

46815 Sale of property (Special)

46816 Sale of property (Special)

46817 Appropriation for payment of salary claims (Special)

46818 Sale of property (Special)

46819 Changes Infirmary and the Isolation Hospital to St. Louis Chronic Hospital, amends §§ 40—44, Ch. 31, 1948 Code, repeals § 2, Ord. 25083 (12.20.010, 12.20.030—12.20.070)

46820 Parking, Rosalie Ave. (Not codified)

46821 Drinking beer, gin, whiskey or wine on public streets, sidewalks, parkways or alleys (Repealed by 51376)

46822 Throwing or placing glass on public streets, sidewalks, parkways or alleys (Repealed by 56726)

46823 Vacates alley (Special)

46824 Fixes board fee for prisoners for 1954 (16.12.030)

46825 Stop intersections, Destrehan Street and Fourteenth Street, Penrose Street and Grove Street (Not codified)

46826 Parking, Fourteenth Street (Not codified)

46827 School stop, Carr Street and Tenth Street (Not codified)

46828 Parking, Allen Ave. and Eighth Street (Not codified)

46829 Parking, Forest Park Ave. (Not codified)

46830 Parking, Laclede Ave. (Repealed by 48333, 49875)

46831 Stop intersection, Evans Ave. and Sarah Street (Not codified)

46832 Stop intersection, Arlington Ave. and Ashland Ave. (Not codified)

46833 Parking, Palm Street (Not codified)

46834 Regulates type of traffic on Northland Place (Not codified)

46835 Stop intersection, Chippewa Street and Sulphur Ave. (Not codified)

46836 Stop intersections, January Ave. and Nottingham Ave., Winona Ave. and Brannon Ave. (Not codified)

46837 Parking, Darby Street, repeals part § 4, Ord. 46035 (Repealed by 48793)

46838 Parking, Ferris Ave. (Repealed by 48791)

46839 Parking, St. Ferdinand Ave. (Not codified)

46840 Designates Kennerly Ave. and Aldine Ave. one-way streets (Not codified)

46841 Parking, Garfield Ave. (Not codified)

46842 Designates Eleventh Street and Tenth Street one-way streets, parking thereon (Not codified)

46843 Parking, Second Street (Not codified)

46844 Parking, Mississippi Ave. (Repealed by 48333)

46845 Parking, Missouri Ave. (Not codified)

46846 Parking, Twenty-third Street (Not codified)

46847 School stop, Eads Ave. and Texas Ave. (Not codified)

46848 Stop intersection, Koeln Ave. and Minnesota Ave. (Not codified)

46849 School stop, Holly Hills Ave. and Michigan Ave. (Not codified)

46850 Parking, McDonald Ave. (Not codified)

46851 School stop, Gustine Ave. and Keokuk Street (Not codified)

46852 Parking, Phillipps Ave. (Not codified)

46853 School stop, Grand boulevard and Pestalozzi Street (Repealed by 51853)

46854 Parking, Kemper Ave. (Not codified)

46855 Parking, Second Street and DeKalb Street (Not codified)

46856 Designates Graham Street one-way street (Not codified)

46857 Designates Oriole Ave. one-way street (Repealed by 50452, 51137)

46858 Stop intersection, Broadway and Keber Ave. (Not codified)

46859 Designates Third Street major street (Not codified)

46860 Stop intersection, Ohio Ave. and Ann Ave. (Not codified)

46861 School stop, Boyle Ave. and Swan Ave. (Not codified)

46862 Parking, Tower Grove Ave. (Not codified)

46863 Parking, Marcus Ave. (Not codified)

46864 School stop, Arsenal Street and Leola Ave. (Not codified)

46865 Parking, Union Ave. (Not codified)

46866 Stop intersection, Harris Ave. and Rosalie Street (Not codified)

46867 Stop intersection, Turner Ave. and Margaretta Ave. (Not codified)

46868 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

46869 Parking, Grand Ave., repeals paragraph 8, § 3, Ord. 46525 (Repealed by 48645, 49062)

46870 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

46871 Designates Theodosia Ave. one-way street, repeals § 2, Ord. 46142 (Repealed by 50502)

46872 Sale of property (Special)

46873 Sale of property (Special)

46874 Sale of property (Special)

46875 Sale of property (Special)

46876 Sale of property (Special)

46877 Sale of property (Special)

46878 Sale of property (Special)

46879 Parking, Shreve Ave. and Geraldine Ave. (Not codified)

46880 Parking, Aurora Ave. and Bulwer Ave. (Not codified)

46881 Stop intersection, Garfield Ave. and Whittier Street (Not codified)

46882 Parking, Jefferson Ave. (Not codified)

46883 Parking, Meramec Street (Not codified)

46884 Prohibits certain commercial vehicles on Clayton Ave. (Not codified)

46885 Designates Beaumont Ave. one-way street (Not codified)

46886 School stop, Goodfellow Ave. and Kennerly Ave. (Not codified)

46887 Designates Macklind Ave. major street (Not codified)

46888 Parking, Saloma Ave. (Not codified)

46889 Designates Kossuth Ave. one-way street (Not codified)

46890 Traffic-control signals, Des Peres Ave. and St. Louis Public Service Co. rightof-way (Not codified)

46891 Appropriation for board of election commissioners (Special)

46892 Designates Belt Ave. one-way street (Not codified)

46893 Parking, Anglerodt Street and Ninth Street (Not codified)

46894 Authorizes contracts for further development of Aloe Plaza (Special)

46895 Keeping refrigerator, icebox or freezer stored with door on unlawful (Ch. 15.106)

46896 Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)

46897 Amends § 2, Ord. 44170, traffic-control signal, DeBaliviere Ave. and Delmar Boulevard (Not codified)

46898 Prohibits certain commercial vehicles, Sutherland Ave., Scanon Ave. and Clifton Ave. (Not codified)

46899 Vacates alley (Special)

46900 Alley improvement (Special)

46901 Establishes Kings Drive (Special)

46902 Vacates alley (Special)

46903 Establishes Orchid Ave. (Special)

46904 Repeals Ord. 46487 (Repealer)

46905 Establishes park and playground (Special)

46906 Authorizes contracts with Morganford Manor to discharge sewage into city system (Special)

46907 Parking, Kossuth Ave. (Not codified)

46908 Stop intersection, Twentieth Street and Linton Ave. (Not codified)

46909 Designates St. Ferdinand Ave. one-way street (Not codified)

46910 Parking, Ranken Ave. (Not codified)

46911 Stop intersection, Prague Ave. and Lansdowne Ave. (Not codified)

46912 Adds § 7-AA, Ord. 45304, church stop, Margaretta Ave. and Shreve Ave. (Not codified)

46913 Conditional alley vacation (Special)

46914 Vacates alley (Special)

46915 Vacates Prospect Ave., alley (Special)

46916 Provides for construction of sewers in Waddell Ave. sewer district no. 1 (Special)

46917 Authorizes contract with Church of St. Rita to discharge sewage into city system (Special)

46918 Authorizes contract with trustees to discharge sewage into city system (Special)

46919 Authorizes contract with trustees to discharge sewage into city system (Special)

46920 Authorizes contract with Brinkop Subdivision to discharge sewage into city system (Special)

46921 Authorizes contract with Mackenzie Hills Subdivision to discharge sewage into city system (Special)

46922 Authorizes contract with Olivette Sewer District to discharge sewage into city system (Special)

46923 Authorizes contract with Bayless school district to discharge sewage into city system (Special)

46924 Authorizes contract with Belle Crest No. 2 Subdivision to discharge sewage into city system (Special)

46925 Authorizes contract with Joyce Terrace Subdivision to discharge sewage into city system (Special)

48926 Authorizes contract with Curtis Sewer District to discharge sewage into city system (Special)

46927 Amends § 48, Ch. 25, 1948 Code, firemen's retirement system (Ch. 4.18)

46928 Amends Part 3, 1948 Code, changes zoning to "D" multiple-dwelling district (Special)

46929 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

46930 Sale of property (Special)

46931 Sale of property (Special)

46932 Sale of property (Special)

46933 Sale of property (Special)

46934 Sale of property (Special)

46935 Sale of property (Special)

46936 Sale of property (Special)

46937 Sale of property (Special)

46938 Amends Ord. 44266, sale of property (Special)

46939 Sale of property (Special)

46940 Sale of property (Repealed by 47335)

46941 Sale of property (Special)

46942 Sale of property (Special)

46943 Sale of property (Special)

46944 Sale of property (Special)

46945 Appropriation for damages (Special)

46946 Sale of property (Special)

46947 Appropriation for completing modernization of administration building and ward buildings of Max C. Starkloff City Hospital (Special)

46948 Designates Maiden Lane one-way street (Not codified)

46949 Parking, Second Street (Not codified)

46950 Parking, Davis Street (Not codified)

46951 Stop intersection, Kingshighway Boulevard and Eichelberger Street (Not codified)

46952 School stop, Russell Boulevard and Lawrence Street (Not codified)

46953 Adds § 7-BB, Ord. 45304, church stop, Clara Ave. and Labadie Ave. (Not codified)

46954 Stop intersection, Olive Street and Taylor Ave. (Not codified)

46955 Designates Laurel Street one-way street (Repealed by 49904)

46956 Parking, Franklin Ave., repeals paragraph 14, § 1, paragraph 17, § 2, Ord. 46525 (Not codified)

46957 Dogs and animals, repeals Ord. 46125 (Ch. 10.04)

46958 Authorizes contracts for development of River Des Peres Park (Special)

46959 Prohibits certain commercial vehicles, Hall Ferry Road (Not codified)

46960 Stop intersection, Riverview Boulevard and Switzer Ave. (Not codified)

46961 Stop intersection, Church Road and Bittner Street (Not codified)

46962 Amends § 9, Ch. 66, 1948 Code, water closet requirements (Repealed by 56797)

46963 Amends Part 3, 1948 Code, extends "K" unrestricted district (Special)

46964 Amends Part 3, 1948 Code, changes zoning to "K" unrestricted district (Special)

46965 Amends Part 3, 1948 Code, changes zoning to "K" unrestricted district (Special)

46966 Designates Garfield Ave. one-way street (Not codified)

46967 Amends Part 3, 1948 Code, "F" local business district (Special)

46968 Parking, Tenth Street (Not codified)

46969 Stop intersection, Eighteenth Street and Shenandoah Ave. (Not codified)

46970 School stop, Fillmore Street and Virginia Ave. (Not codified)

46971 Parking, Chouteau Ave. (Not codified)

46972 Designates Cozen Ave. one-way street, parking thereon (Not codified)

46973 Stop intersection, River Des Peres Boulevard and Lansdowne Ave. (Not codified)

46974 Parking, Manchester Ave. (Not codified)

46975 Adds § 7-DD, church stop, Cates Ave. and Goodfellow Boulevard (Not codified)

46976 School stop, Twenty-fifth Street and Warren Street (Not codified)

46977 Designates Cora Ave. one-way street, parking thereon (Repealed by 47142)

46978 Parking, Mullanphy Street (Not codified)

46979 Stop intersection, Eighteenth Street and Sidney Street (Not codified)

46980 Designates Wyoming Street major street (Not codified)

46981 School stop, St. Louis Ave. and Taylor Ave. (Not codified)

46982 Parking, Miami Street (Not codified)

46983 Parking, DeKalb Street (Repealed by 47381)

46984 School stop, Chouteau Ave. and Boyle Ave. (Not codified)

46985 Sale of property, block 2160 (Repealed by 51731)

46986 Sale of property (Special)

46987 Sale of property (Special)

46988 Sale of property (Special)

46989 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

46990 Additional appropriation for construction of sewers and acquisition of rights-of-way (Special)

46991 Appropriation for damages (Special)

46992 Authorizes agreement with St. Louis-San Francisco Railway Co. for sewer (Special)

46993 Appropriation for local grants in aid for land clearance for redevelopment authority (Repealed by 48148)

46994 Authorizes conveyance of rights to certain property (Special)

46995 Authorizes cooperation agreement with land clearance for redevelopment authority (Special)

46996 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

46997 Vacates Benedict Ave. and Withers Ave. (Special)

46998 Conditional vacation (Special)

46999 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

47000 Parking, certain streets, repeals paragraph 40, § 4, Ord. 46525 (Not codified)

47001 Amends Part 3, 1948 Code,, extends "G" commercial district (Special)

47002 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47003 Amends Part 3, 1948 Code, extends "F" local business district (Special)

47004 Amends Part 3, 1948 Code, changes zoning to "I" central business district (Special)

47005 Amends Part 3, 1948 Code, extends "G" commercial district (Special)

47006 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

47007 Authorizes nonprofit organization to enclose playing fields for games in public parks or recreational facilities, repeals §§ 23-37, Ch. 48, 1948 Code (Ch. 22.24)

47008 Amends §§ 16, 18, 19, 20, 21, 22, Ch. 31, 1948 Code, fees for treatment at any hospital operated by the division of hospitals (12.08.100—12.08.170)

47009 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47010 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47011 Traffic-control signals, Chippewa Street and Kingshighway Boulevard (Not codified)

47012 Traffic-control signal, Finney Ave. and Vandeventer Ave., repeals Ord. 45645 (Not codified)

47013 Amends § 2, Ord. 44953, traffic-control signal, Jamieson Ave. and Chippewa Boulevard (Not codified)

47014 Amends Part 3, 1948 Code, extends "F" local business district (Special)

47015 Grants license to Academy of Science for portion of World's Fair Pavilion (Special)

47016 Appropriation for current expenses (Special)

47017 Amends § 69, Ch. 5, 1948 Code, nonintoxicating beer (Repealed by 51376)

47018 Sale of property (Special)

47019 Sale of property (Special)

47020 Sale of property (Special)

47021 Parking, Union Ave. (Not codified)

47022 Parking, Bittner Street (Not codified)

47023 Parking, Church Road (Not codified)

47024 School stop, Eighteenth Street and Papin Street (Not codified)

47025 School stop, Franklin Ave. and Twenty-third Street (Not codified)

47026 Prohibits certain commercial vehicles, Mardel Ave., Oleatha Ave., Lawn Ave., Watson Road and Pernod Ave. (Not codified)

47027 Conditional vacation, Gasconade Street (Not codified)

47028 Parking, Ninth Street (Not codified)

47029 Parking, Broadway, repeals part paragraph 1, § 4, Ord. 46525 (Not codified)

47030 Parking, Sixth Street (Repealed by 49605)

47031 Parking, Chouteau Ave. (Not codified)

47032 Parking, North Market Street, Hadley Street, Monroe Street (Not codified)

47033 Establishes Oriole Ave. (Repealed by 47680)

47034 Establishes alley (Special)

47035 Prohibits certain commercial vehicles, Eichelberger Ave. (Not codified)

47036 Amends § 1, Ord. 46755, parking, West Pine Boulevard (Not codified)

47037 Vacates alley (Special)

47038 Curfew hours (Ch. 15.110)

47039 Sale of property (Special)

47040 Lease of space in Union Market, repeals §§ 12, 13, 23, 24, 29, Ch. 38, 1948 Code (11.44.320, 11.44.330)

47041 Amends § 41, Ch. 29, 1948 Code, charge for mooring facilities (Repealed by 56707)

47042 Amends § 41, Ch. 31, 1948 Code, minors in St. Louis Chronic Hospital (12.20.050)

47043 Provides for sidewalk in blocks 6393 and 6392 (Special)

47044 Boat and canoe liveries on park lakes, repeals §§ 20, 21 and 22, Ch. 48, 1948 Code (Repealed by 49771)

47045 Establishes out lot 63 part of River Des Peres Park (Special)

47046	Parking, Twenty-third street (Not codified)
47047	Use of River Des Peres Boulevard by commercial vehicles (Not codified)
47048	Stop intersection, West Florissant Ave. and Warne Ave. (Not codified)
47049	School stops, Garfield Ave. and Belle Glade Ave., Garfield Ave. and Sarah Street (Not codified)
47050	Parking, Prairie Ave. (Not codified)
47051	Stop intersection, Mulanphy Street and Eighteenth Street (Not codified)
47052	Repeals § 495, Ch. 69, 1948 Code (Repealer)
47053	Stop intersection, Macklind Ave. and Gresham Ave. (Not codified)
47054	Designates Brantner Place one-way street (Not codified)
47055	Parking, Manchester Ave. (Not codified)
47056	Establishes alley (Special)
47057	Amends § 68, Ch. 2, 1948 Code, street division (3.32.040)
47058	Vacates alley (Special)
47059	Vacates alley (Special)
47060	Amends §§ 47 and 50, Art. 2, Ch. 64, 1948 Code, street cleaning, repeals §§ 46 and 5 1, Art. 2, Ch. 64, 1948 Code (20.18.010, 20.18.040)
47061	Amends § 109, Ch. 64, 1948 Code, inspection charge for excavations in highways (20.30.140)
47062	Amends Ord. 46783, conditional vacation, alley, block 3886 (Special)
47063	Levies earnings tax (Ch. 5.22)
47064	Classified service and compensation plan (Ch. 4.10)
47065	Appropriation for current expenses (Special)
47066	Establishes tax rate for 1954 (5.26.010—5.26.050)
47067	Prohibits certain commercial vehicles, Riverview Boulevard (Not codified)
47068	Amends § 3, Ord. 46620, application of ordinance (Not codified)
47069	Amends § 11, Ord. 46525, application of ordinance (Not codified)
47070	Parking, Gimblin Street (Not codified)
47071	Prohibits certain commercial vehicles, Goodfellow Boulevard (Not codified)
47072	Prohibits certain commercial vehicles, Goodfellow Boulevard (Not codified)
47073	Vacates Park Ave., Kosciusko Street and alley in block 199 (Special)
47074	Vacates Goethe Ave., designates remaining part public walk (Special)
47075	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
47076	Parking, Bent Ave. (Not codified)
47077	Appropriation for development of terminal area at Lambert-St. Louis Municipal Airport (Special)
47078	Designates Cora Ave. one-way street (Not codified)
47079	Amends Part 3, 1948 Code, changes zoning to "D" multiple dwelling district (Special)
47080	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
47081	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
47082	Street improvement (Special)
47083	Street improvement (Special)
47084	Amends Part 3, 1948 Code, extends "C" multiple-family dwelling district (Special)
47085	Grades for alleys (Special)
47086	Grades for Grand Boulevard (Special)
47087	Grades for Market Street (Special)
47088	Alley improvement (Special)
47089	Designates First Street one-way street (Not codified)
47090	Parking, Eighth Street (Repealed by 49430)
47091	Parking, Cole Street and Twenty-first Street (Not codified)
47092	Parking, Maiden Lane (Not codified)

47093 Parking, Howard Street (Not codified)

47094 School stop, certain location on North Fifteenth Street (Not codified)

47095 Parking, Sixteenth Street (Not codified)

47096 Designates Sidney Street major street (Not codified)

47097 Parking, Dorcas Street (Not codified)

47098 Stop intersection, Marceau Street and Reilly Ave. (Not codified)

47099 Stop intersection, Newport Ave. and Delor Street (Not codified)

47100 Stop intersection, Ulena Ave. and Walsh Street (Not codified)

47101 Parking, Ridgewood Ave. (Not codified)

47102 Stop intersection, Burgen Ave. and Leona Street (Not codified)

47103 Stop intersection, Delor Street and Newport Ave. (Not codified)

47104 Stop intersection, Ewing Ave. and Hickory Street (Not codified)

47105 Stop intersection, Fyler Ave. and Sublette Ave. (Not codified)

47106 Stop intersection, Brannon Ave. and Neosho Street (Not codified)

47107 Stop intersection, Jamieson Ave. and Lindenwood Place (Not codified)

47108 Designates Neosho Street one-way street (Not codified)

47109 Adds § 7-CC, Ord. 45304, church stop, Jamieson Ave. and Marquette Ave. (Not codified)

47110 Stop intersection, Euclid Ave and Highland Ave. (Not codified)

47111 Designates Greer Ave. one-way street (Not codified)

47112 Parking, Manchester Ave. (Not codified)

47113 Speed limit, Westminster Place and Kingsbury Place (Repealed by 57831)

47114 Parking, Belt Ave. (Not codified)

47115 Appropriation for acquisition established by Ord. 46429 (Special)

47116 Appropriation for terminal area at Lambert-St Louis Municipal Airport (Special)

47117 Provides for election for proposed amendment to charter (Charter Art. I)

47118 Appropriations for condemnation expenses (Special)

47119 Authorizes lease with Mississippi Valley Barge Line Co. for wharf (Special)

47120 Changes Bellefontaine Farms institution to Missouri Hills (Special)

47121 Appropriation for study of off-street parking (Special)

47122 Grades for Robert Ave. (Special)

47123 Street improvement (Special)

47124 Alley improvement (Special)

47125 Traffic-control signals, Millbrook Boulevard and Skinker Boulevard (Repealed by 47276)

47126 Vacates Holly Hills Ave. (Special)

47127 Vacates alley (Special)

47128 Vacates First Street (Special)

47129 Vacates alley (Special)

47130 Amends § 1, Ch. 61, 1948 Code, solicitations (Ch. 3.60)

47131 Stop intersection, Palm Street and Jefferson Ave. (Not codified)

47132 Parking, Warren Street (Not codified)

47133 Parking, Warren Street (Not codified)

47134 Parking, Jefferson Ave. (Repealed by 48333)

47135 Parking, Papin Street (Repealed by 48333)

47136 Parking, Lafayette Ave. (Repealed by 48333)

47137 Designates Park Ave. major street (Not codified)

47138 Designates Gratiot Street and Lombard Street one-way streets, parking, Lombard Street (Not codified)

47139 Designates Windsor Place one-way street (Not codified)

47140 Stop intersection, Cook Ave. (Not codified)

47141 Stop intersection, Kossuth Ave. and Prairie Ave. (Not codified)

47142 Designates Cora Ave. and Cote Brilliante Ave. one-way streets, repeals Ord. 46977 (Not codified)

47143 Stop intersection, Davis Street and Reilly Ave. (Not codified)

47144 Amends Ord. 46685, establishes January Ave. (Special)

47145 Stop intersection, Enright Ave. and Sarah Street (Not codified)

47146 Parking, Grand Boulevard and Lindell Bouldvard (Not codified)

47147 School stop, Boyle Ave. and Maryland Ave. (Not codified)

47148 Parking, Spring Ave., amends paragraph 27, § 4, Ord. 46525 (Not codified)

47149 Establishes tax rate on tangible property in metropolitan St. Louis sewer district (Special)

47150 Traffic-control signals, Skinker Boulevard and Delmar Ave. (Not codified)

47151 Amends Part 3, 1948 Code, changes zoning to "E" multiple dwelling district (Special)

47152 Appropriation for damages (Special)

47153 Establishes Singleton Street (Repealed by 47429)

47154 Fire lane in alleys (Not codified)

47155 Stop intersection, Maffitt Ave. and Goodfellow Boulevard (Not codified)

47156 Prohibits certain commercial vehicles, Maffitt Ave. (Not codified)

47157 Designates St. Louis Ave. one-way street (Not codified)

47158 Prohibits certain commercial vehicles, Terry Ave. (Not codified)

47159 Parking, Jasper Park (Not codified)

47160 Provides relief for Virgil L. Hendrix (Special)

47161 Creates the urban redevelopment and neighborhood rehabilitation fund (Repealed by 48434)

47162 Authorizes contracts for improvement of Thirteenth Street (Special)

47163 Amends §§ 42 and 44, Ch. 48, 1948 Code, golf and tennis permits (Repealed by 49771)

47164 Authorizes reconveyance of certain real property (Special)

47165 Conditional vacation of alley (Special)

47166 Sale of property (Special)

47167 Sale of property (Special)

47168 Sale of property (Special)

47169 Sale of property (Special)

47170 Sale of property (Special)

47171 Sale of property (Special)

47172 Sale of property (Special)

47173 Sale of property (Special)

47174 Sale of property (Special)

47175 Sale of property (Special)

47176 Sale of property (Special)

47177 Sale of property (Special)

47178 Sale of property (Special)

47179 Sale of property (Special)

47180 Sale of property (Special)

47181 Sale of property (Special)

47182 Sale of property (Special)

47183 Sale of property (Special)

47184 Sale of property (Special)

47185 Conditional vacation of alley (Special)

47186 Sale of property (Special)

47187 Sale of property (Special)

47188 Sale of property (Repealed by 47542)

47189 Sale of property (Special)

47190 Sale of property (Special)

47191 Sale of property (Special)

47192 Sale of property (Special)

47193 Sale of property (Special)

47194 Amends paragraph 2, § 15, Ord. 46687, driving while intoxicated (Repealed by 57831)

47195 Vacates alley (Special)

47196 Amends Part 3, 1948 Code, extends "F" local business district (Special)

47197 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47198 Conditional vacation, Lilly Ave. and League Ave. (Special)

47199 Parking, Hospital Drive in Forest Park (Not codified)

47200 Parking, Washington Drive in Forest Park (Not codified)

47201 Parking, Park Drive in O'Fallon Park (Not codified)

47202 Parking, Lagoon Drive in Forest Park (Not codified)

47203 Conditional alley vacation (Special)

47204 Stop intersection, Macklind Ave. and Nottingham Ave. (Not codified)

47205 Parking, Red Bud Ave. (Repealed by 50422)

47206 Stop intersection, North Florissant Ave. and Bremen Ave. (Not codified)

47207 Designates alley one-way (Not codified)

47208 Vacates alley (Special)

47209 Repeals § 425, Ch. 69, 1948 Code (Repealer)

47210 Parking, Twenty-third Street (Not codified)

47211 Parking, North Market Street (Not codified)

47212 Parking, Nineteenth Street (Not codified)

47213 Parking, Poplar Street (Not codified)

47214 Parking, Twenty-second Street (Not codified)

47215 Parking, Bent Ave. (Not codified)

47216 Parking, DeTony Street (Not codified)

47217 Designates alley one-way (Not codified)

47218 School stop, Brantner Place and Webster Ave. (Not codified)

47219 Conditional vacation of alley (Special)

47220 Designates Roosevelt Ave. one-way street (Not codified)

47221 Designates Manchester Ave. major street (Not codified)

47222 Improvement Vivian Ave. and Drury Lane (Special)

47223 Airport commission, repeals §§ 1, 2, 3, 4 and 5, Ch. 4, 1948 Code (Repealed by 54999)

47224 Fluoride (Ch. 11.26)

47225 Authorizes contracts for facilities for adding fluroride to city water (Special)

47226 Sale of property (Special)

47227 Sale of property (Special)

47228 Sale of property (Special)

47229 Sale of property (Special)

47230 Sale of property (Special)

47231 Sale of property (Special)

47232 Sale of certain property (Repealed by 47481)

47233 Sale of certain property (Special)

47234 Sale of property (Special)

47235 Appropriation for damages (Special)

47236 Appropriation for damages (Special)

47237 Authorizes contract with Bayless Hills Subdivision (Special)

47238 Improvement, Mardel Ave. (Special)

47239 Vacates alley (Special)

47240 Establishes Primm Lane (Special)

47241 School stop, Watson Road and Juniata Street (Repealed by 50456)

47242 Amends Ord. 46717, establishes Jefferson Ave. (Special)

47243 Changes Upton Street to Upton Court (Special)

47244 Establishes alley (Special)

47245 Blighted areas listed (Special)

47246 Authorizes land lease to Union Electric Co. (Special)

47247 Appropriation for adding fluoride to water (Special)

47248 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47249 Playground stop, Lemp Ave. and Wyoming Street (Not codified)

47250 Stop intersection, Morgan Ford Road and Robert Ave. (Not codified)

47251 Playground stop, Loughborough Ave. and Trainor Court (Not codified)

47252 Traffic-control signals, Kingshighway Boulevard and Nottingham Ave. (Not codified)

47253 Traffic-control signals, Hampton Ave. and Pernod Ave. (Not codified)

47254 Parking, Broadway and Clinton Street (Not codified)

47255 Parking, Broadway (Not codified)

47256 Stop intersection, Russell Boulevard and Mississippi Ave. (Not codified)

47257 Parking, Sidney Street (Not codified)

47258 Stop intersection, Primm Street and Pennsylvania Ave. (Not codified)

47259 Parking, Gustine Ave. (Not codified)

47260 Parking, Spring Ave. (Not codified)

47261 Parking, Spring Ave., repeals Ord. 46121 (Not codified)

47262 Adds § 7-EE, Ord. 45304, church stop, McCausland Ave. and Stanley Ave. (Not codified)

47263 Parking, Castleman Ave. (Not codified)

47264 Stop intersection, Arkansas Ave. and Cherokee Street (Not codified)

47265 Parking, Potomac Street (Not codified)

47266 Parking, Marine Ave. (Not codified)

47267 Parking, Bates Street (Not codified)

47268 Stop intersection, College Ave. and Emily Street (Not codified)

47269 Parking, Compton Ave. (Not codified)

47270 Parking, Chouteau Ave. (Not codified)

47271 Parking, Macklind Ave. (Not codified)

47272 Parking, Watson Road (Not codified)

47273 Parking, Edwards Street (Not codified)

47274 Stop intersection, Graham Street and West Park Ave., repeals Ord. 46080 (Not codified)

47275 Stop intersection, Wise Ave. and Tamm Ave. (Not codified)

47276 Traffic-control signals, Rock Island Highway and Skinker Boulevard, repeals Ord. 47125 (Not codified)

47277 Stop intersection, DeGiverville Ave. and Laurel Street, repeals § 1803, Ch. 69, 1948 Code (Not codified)

47278 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

47279 Amends § 1, Ord. 45606, sheriff's office employees (Ch. 4.36)

47280 Conditional vacation, Second Street, dedication of land for widening Second Street (Special)

47281 Repeals Ord. 45995 (Repealer)

47282 Playground stops, Louisiana Ave. and Shenandoah Ave., Louisiana Ave. and Sidney Street, Shenandoah Ave. and Tennessee Ave. (Not codified)

47283 Parking, Third Street (Not codified)

47284 Parking, Shenandoah Ave., repeals Ord. 45416 (Not codified)

47285 Stop intersection, Pennsylvania Ave. and Upton Street (Not codified)

47286 School stop, Compton Ave. and Eads Ave. (Not codified)

47287 Parking, Lindell Boulevard (Not codified)

47288 Designates alley one-way (Not codified)

47289 Parking, Papin Street (Not codified)

47290 Adds § 7-FF, Ord. 45304, church stop, Athlone Ave. and Carter Ave. (Not codified)

47291 Designates Itaska Street one-way street (Not codified)

47292 Stop intersection, Belt Ave. and Wells Ave. (Not codified)

47293 Recorder of deeds employees, repeals Ord. 45598 (Repealed by 49949)

47294 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47295 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47296 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47297 Appropriation for office of license collector (Special)

47298 Appropriation for damages (Special)

47299 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47300 Appropriation for city register (Special)

47301 Issuance of park bonds (Special)

47302 Issuance of bonds (Special)

47303 Authorizes land purchase for highway (Special)

47304 Amends § 16, Ch. 24, 1948 Code, fire alarms (Repealed by 63805)

47305 Amends § 37, Ch. 5, 1948 Code, license (Repealed by 51376)

47306 Amends § 413, Part 1, Vol. 2, 1948 Code, classification of structures (Repealed by 50502)

47307 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47308 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

47309 Sale of property (Special)

47310 Sale of property (Special)

47311 Sale of property (Special)

47312 Sale of property (Special)

47313 Sale of property (Special)

47314 Sale of property (Special)

47315 Sale of property, repeals Ord. 45444 (Special)

47316 Sale of property (Special)

47317 Sale of property (Special)

47318 Designates Sarah Street major street (Not codified)

47319 Amends Ord. 46635, establishes alley, block 5770-N (Special)

47320 Conditional vacation, Atlantic Street and alleys, blocks 2211 and 2209 (Special)

47321 School stop, Harney Ave. and Queens Ave. (Not codified)

47322 Parking, Broadway (Not codified)

47323 Parking, Broadway and Seventh Street (Not codified)

47324 Parking, Ninth Street (Not codified)

47325 Playground stop, Carroll Street and Eighteenth Street (Not codified)

47326 Parking, Seventeenth Street (Not codified)

47327 Parking, Third Street, repeals §§ 771 and 772, Ch. 69, 1948 Code (Not codified)

47328 Parking, Park Ave. (Repealed by 48333)

47329 Parking, Arsenal Street (Not codified)

47330 Parking, Broadway (Not codified)

47331 Stop intersection, Loughborough Ave. and January Ave. (Not codified)

47332 Stop intersection, Burd Ave. and Ridge Ave. (Not codified)

47333 Stop intersection, Riverview Boulevard and Wren Ave. (Repealed by 49075)

47334 Parking, Natural Bridge Ave. (Repealed by 48333)

47335 Sale of property, repeals Ord. 46940 (Special)

47336 Appropriation for installation of traffic signals (Special)

47337 Designates Paulian Place, Theodosia Ave., Newcomb Place one-way streets, parking thereon (Not codified)

47338 Parking, Lexington Ave. (Not codified)

47339 School stop, Broadway and Gimblin Road (Not codified)

47340 Adds § 7-GG, Ord. 45304, church stop, Bowen Street and Michigan Ave. (Not codified)

47341 Parking, Bent Ave. (Not codified)

47342 Adds § 7-HH, Ord. 45304, church stop, Flad Ave. and Thirty-ninth Street (Not codified)

47343 Adds § 7-II, Ord. 45304, church stop, Olive Street and Pendleton Ave. (Not codified)

47344 Parking, Duncan Ave. (Not codified)

47345	Parking, Olive Street and Pendleton Ave. (Not codified)
47346	Parking, Forest Park Ave. (Not codified)
47347	School traffic signals, Natural Bridge Ave. and Prairie Ave. (Not codified)
47348	Alley improvement (Special)
47349	Alley improvement (Special)
47350	Appropriation for damages (Special)
47351	Vacates streets and alleys (Special)
47352	Amends Ord. 43529, establishes Morgan Ford Road (Special)
47353	Stop intersection, Broadway and Adelaide Ave. (Not codified)
47354	Parking, Gratiot Street (Not codified)
47355	Parking, Eighth Street and Soulard Street (Not codified)
47356	Designates Palm Street one-way street (Not codified)
47357	Designates alley one-way (Not codified)
47358	Designates Winona Ave. one-way street (Not codified)
47359	Stop intersection, Ridge Ave. and Arlington Ave. (Not codified)
47360	Traffic-control signals, various intersections (Not codified)
47361	Traffic-control signals, various intersections (Not codified)
47362	Designates Hony Place one-way street (Not codified)
47363	Authorizes contracts for improvement of recreation facilities in Hyde Park (Special)
47364	Describes blighted areas (Special)
47365	Establishes alley (Special)
47366	Appropriation for refuse incinerator plant (Special)
47367	Amends § 1950, Part 1, Vol. 2, 1948 Code, garages (Repealed by 50502)
47368	Relief for Metzger Super Market, Inc. (Special)
47369	Relief for Central 5¢ to $1.00 Store (Special)
47370	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47371	Amends §§ 2 and 5, Ch. 64, 1948 Code, structures over highways (20.24.010—20.24.040, 20.24.070)
47372	Parking, Utah Street (Not codified)
47373	Adds § 7-KK, Ord. 45304, church stop, Oregon Ave. and Utah Street (Not codified)
47374	Stop intersection, Lynch Street and Texas Ave., repeals § 1978, Ch. 69, 1948 Code (Not codified)
47375	Parking, Gravois Ave. (Repealed by 48333)
47376	School stop, Bradley Ave. and Jamieson Avd. (Repealed by 49798)
47377	Adds § 7-JJ, Ord. 45304, church stop, Wells Ave. and Union Boulevard (Not codified)
47378	Stop intersection, Riverview Boulevard and Henner Ave. (Repealed by 49074)
47379	Parking, Farlin Ave. (Not codified)
47380	School stop, Ann Ave. and Eighth Street (Not codified)
47381	Repeals Ord. 46983 (Repealer)
47382	School stop, Compton Ave. and Hickory Street (Repealed by 51492)
47383	Parking, Taylor Ave. (Not codified)
47384	Parking, Boyle Ave. (Not codified)
47385	Designates Cora Ave. one-way street (Not codified)
47386	Designates Ashland Ave. one-way street (Not codified)
47387	School stop, Lee Ave., Athlone Ave. and Turner Ave. (Not codified)
47388	Amends Part 3, 1948 Code, extends "H" commercial district (Special)
47389	Regulates use of certain devices in dispensing fuel into vehicles, repeals part § 1934, Ch. 14, 1948 Code (Repealed by 50502)
47390	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47391 Amends paragraph 26, § 3, Ord. 46525, parking, Union Boulevard (Not codified)

47392 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47393 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47394 Provides for leasing space for restaurant and concessions at Lambert-St. Louis Municipal Airport (Special)

47395 Fixes prisoner board fee for 1955 (16.12.030)

47396 Amends § 39, Ch. 46, 1948 Code, loitering (15.48.010)

47397 Adds § 13, Ord. 29617, rights-of-way for St. Louis Transfer Railway Co. (Special)

47398 Amends Ord. 15800, grants right to operate refrigerating works to St. Louis Automatic Refrigerating Co. (Special)

47399 Amends §§ 20 and 24C, Part 2, Vol. 2, 1948 Code, electrical inspection fees (Repealed by 50502)

47400 Amends § 2, Ord. 46691, contract for state highway (Special)

47401 Vacates portion of highway on north side of Miller Street (Special)

47402 Sale of property (Special)

47403 Amends § 22, Ch. 67, 1948 Code, motion picture machine operators (8.100.280)

47404 Amends Part 3, 1948 Code, extends "J" industrial district (Special)

47405 Amends Part 3, 1948 Code, changes zoning to "F" commercial district (Special)

47406 Vacates certain streets and alleys (Special)

47407 Parking, Ouida Street (Repealed by 50177, 50820)

47408 School stop, Benton Street and Eleventh Street, Eleventh Street and North Market Street (Not codified)

47409 School stop, Olive Street and Pendleton Ave. (Not codified)

47410 Stop intersection, Cole Street and Eighth Street (Not codified)

47411 Stop intersection, January Ave. and Eichelberger Street (Not codified)

47412 Parking, Twenty-third Street (Not codified)

47413 Stop intersection, Quincy Street and Michigan Ave. (Not codified)

47414 Parking, Goodfellow Boulevard (Not codified)

47415 Stop intersection, Walsh Street and Dewey Ave. (Not codified)

47416 Authorizes contracts for steam turbine at Max C. Starkloff City Hospital (Special)

47417 Appropriation for new division to magistrates court (Special)

47418 Authorizes contracts for reconstruction of Gustine Ave. (Special)

47419 Authorizes contracts for improvement of unlighted streets (Special)

47420 Authorizes contract for off-street parking projects (Special)

47421 Amends §§ 1473, 1475, 1478, 1489, 1493, 1494, 1495, 1496 and 1497, Art. 21, Part 1, 1948 Code, signs (Repealed by 50502)

47422 Amends § 1957, Part 1, Vol. 2, 1948 Code, vehicle ramps and elevators (Repealed by 50502)

47423 Amends §§ 121 and 124, repeals §§ 122 and 125, Ch. 23, 1948 Code, supply contracts for city institutions (5.58.090, 5.58.110)

47424 Amends § 345, Ch. 5, Part 1, Vol. 2, 1948 Code, hazard restriction in group "A" occupancy (Repealed by 50502)

47425 Authorizes dedication of parts of Goodfellow Boulevard (Special)

47426 Reaffirms authority to issue certain bonds (Special)

47427 Repeals § 16, Ord. 46399 (Repealer)

47428 Appropriation for metropolitan transportation district (Special)

47429 Repeals Ord. 47153 (Repealer)

47430	Designates Cottage Ave. one-way street (Not codified)
47431	Designates Nottingham Ave. one-way street (Not codified)
47432	Vacates certain streets and alleys (Special)
47433	Designates North Market Street and Garfield Ave. one-way streets (Not codified)
47434	Improvement, Arendes Drive (Special)
47435	Appropriation for land for parks and playgrounds (Special)
47436	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47437	Sale of property (Special)
47438	Sale of property (Special)
47439	Sale of property (Special)
47440	Sale of property (Special)
47441	Sale of property (Special)
47442	Sale of property (Special)
47443	Sale of property (Special)
47444	Improvement, Finkman Street (Special)
47445	Alley improvement (Special)
47446	Alley improvement (Special)
47447	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
47448	Amends § 1, Ord. 47240, establishes Primm Lane (Special)
47449	Appropriation for sheriff employees salary increases (Special)
47450	Appropriation for recorder of deeds extra employees (Special)
47451	Appropriation for circuit court, juvenile division, probation department salary increases (Special)
47452	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47453	Authorizes contracts for improvement of Morgan Ford Road (Special)
47454	Amends § 23, Ch. 43, 1948 Code, public mover vehicle annual inspection fee (8.68.240)
47455	Repossessed vehicle report to chief of police (17.54)
47456	Improvement, Holly Hills Ave. (Special)
47457	Vacates Gano Ave. (Special)
47458	Vacates walk (Special)
47459	Conditional vacation, Robert Ave. (Special)
47460	Parking, Twenty-fifth Street and Mallinckrodt Street (Not codified)
47461	Traffic-control signals, Des Peres Ave. and Lindell Road (Not codified)
47462	Prohibits certain commercial vehicles, on alley (Not codified)
47463	Designates Enright Ave. one-way street (Not codified)
47464	School stop, Cole Street and Selby (Not codified)
47465	Stop intersection, Cole Street and Eighteenth Street (Not codified)
47466	School stop, Lafayette Ave. and Missouri Ave. (Not codified)
47467	Designates alley one-way (Not codified)
47468	Adds § 7-00, Ord. 45304, church stop, Eleventh Street and Lafayette Ave. (Not codified)
47469	Parking, Spring Ave. (Not codified)
47470	Parking, Grand Boulevard (Repealed by 48539)
47471	Adds § 7-NN, Ord. 45304, church stop, Michigan Ave. and Mott Street (Not codified)
47472	Parking, Laclede Ave. (Repealed by 48333)
47473	Adds § 7-MM, Ord. 45304, church stop, Finney Ave. and St. Alphonsus Street (Not codified)
47474	Stop intersection, Plainview Ave. and McCousland Ave. (Not codified)
47475	Traffic-control signals, Broadway and North Calvary Ave. (Not codified)
47476	Parking, Glasgow Ave. (Not codified)
47477	Parking, Arsenal Street (Not codified)
47478	Sale of property (Special)

47479 Sale of property (Special)

47480 Sale of property (Special)

47481 Sale of property, repeals Ord. 47232 (Special)

47482 Sale of property (Special)

47483 Sale of property (Special)

47484 Sale of property (Repealed by 47572)

47485 Sale of property (Special)

47486 Sale of property (Special)

47487 Accepts donation to improve Forest Park (Special)

47488 Additional appropriation for reconstruction of Twenty-first Street Bridge (Special)

47489 Authorizes contracts for improvement of recreation facilities in Zoological Park (Special)

47490 Appropriation for damages (Special)

47491 Appropriation for damages (Special)

47492 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47493 Amends § 24, Ord. 45309, changes and amendments (26.88.010—26.88.030)

47494 Amends § 18, Ord. 45309, use, area and height exceptions (Title 26)

47495 Amends subsection D, § 12, Ord. 45309, area regulations in "F" business district (Title 26)

47496 Amends paragraph 3, subsection (c), § 5, Ord. 45309, off-street parking (26.16.090)

47497 Amends paragraph 2, subsection D, § 11, Ord. 45309, side yard requirements in "E" multiple-family dwelling district (26.40.060)

47498 Amends paragraphs 23, 42, 43, 45, adds paragraph 46, § 3, Ord. 45309, definitions (26.08.550, 26.08.560, 26.08.580)

47499 Amends § 9, Ch. 66, 1948 Code, water closet requirements (Repealed by 56797)

47500 Amends §§ 16, 21 and 23, repeals § 19, Ch. 59, 1948 Code, smoke abatement (Repealed by 50163)

47501 Establishes route for Mark Twain Expressway (Special)

47502 Establishes portions of Christy Boulevard as park (Special)

47503 Amends § 6, Ord. 47063, earnings tax (5.22.060)

47504 Adds § 7-LL, Ord. 45304, church stop, Hamilton Boulevard and Julian Ave. (Not codified)

47505 Stop intersection, Ohio Ave. and St. Vincent Ave. (Not codified)

47506 Parking, Second Street (Not codified)

47507 Traffic-control signals, various intersections (Not codified)

47508 Parking, Waterman Boulevard and Union Boulevard (Not codified)

47509 Vacates alley (Special)

47510 Sale of weapons to minors (15.134.030)

47511 Vacates various streets and alleys (Special)

47512 Designates Ewing Ave. major street (Not codified)

47513 Establishes Gilmore Ave. (Special)

47514 Vacates easement, block 5774 (Special)

47515 Amends § 1, Ord. 46472, establishes park and playground (Special)

47516 Distribution of certain pictures and publications to minors, creates board of review for juvenile readers (Repealed by 51871)

47517 Sale of property (Special)

47518 Amends § 42, Ord. 47163, permits to play golf in parks (Repealed by 49771)

47519 Provides for election to incur indebtedness and issue bonds (Special)

47520 Sale of property (Special)

47521 Sale of property (Special)

47522 Appropriation for current expenses for fiscal year (Special)

47523 Establishes taxes for 1955 (5.26.0105.26.050)

47524 Amends § 98, Ch. 23, 1948 Code, treasury division employee salaries (4.26.020)

47525	Authorizes acceptance of deed to certain lands (Special)
47526	Stop intersection, Arkansas Ave. and Hartford Street (Not codified)
47527	Amends § 45, Ch. 65, 1948 Code, taxicab annual inspection fee (8.98.150, 8.98.155)
47528	Appropriation for damages (Special)
47529	Sale of property (Special)
47530	Sale of property (Special)
47531	Designates Tower Grove Place one-way street (Not codified)
47532	Designates Maple Ave. one-way street (Not codified)
47533	Vacates alley, block 749 (Special)
47534	Appropriation for acquisition of lands (Special)
47535	Authorizes contracts for construction of fire station No. 31 (Special)
47536	Sale of property, repeals Ord. 44770 (Special)
47537	Sale of property (Special)
47538	Sale of property (Special)
47539	Sale of property (Special)
47540	Sale of property (Special)
47541	Sale of property (Special)
47542	Sale of property, repeals Ord. 47188 (Special)
47543	Authorizes contracts for improvement of recreation facilities in Benton Park and Carnegie Playground (Special)
47544	Authorizes contracts for improvement of recreation facilities at DeSoto Park (Special)
47545	Amends § 1, Ord. 46901, establishes Kings Drive (Special)
47546	Establishes alley, block 6090 (Special)
47547	Establishes alley, block 6091 (Special)
47548	Compensation and duty schedule for parking meter division (4.30.010)
47549	Coroner and morgue employee salaries, repeals Ord. 46335 (Repealed by 48293)
47550	Amends §§ 71 and 72, Ch. 64, 1948 Code, public service work (6.08.020, 6.08.030)
47551	Defines blighted areas (Special)
47552	Establishes alley (Special)
47553	Conditional vacation, La Salle Street (Special)
47554	Provides for leasing underground aviation fuel distribution system at Lambert-St. Louis Municipal Airport (Special)
47555	Classified service and compensation plan (Ch. 4.10)
47556	Authorizes acceptance of gift for construction of bench-screen wall (Special)
47557	Authorizes acceptance of shares of stock (Special)
47558	Declares result of election for incurring indebtedness and issuance of bonds (Special)
47559	Authorizes contracts for improvement of Fourteenth Street (Special)
47560	Authorizes contracts for construction of fire station No. 40-41 (Special)
47561	Appropriation for damages (Special)
47562	Appropriation for damages (Special)
47563	Appropriation for further development of terminal area at Lambert-St. Louis Municipal Airport (Special)
47564	Authorizes contracts for improvement of Morgan Ford Road (Special)
47565	Authorizes contracts for architectural and engineering services for construction of fire alarm headquarters building (Special)
47566	Authorizes contracts for remodeling lobby at St. Louis City Hospital (Special)
47567	Authorizes contracts for improvement of recreation facilities in Benton Park, Hyde Park and Carnegie Playground (Special)
47568	Authorizes employment of architects and engineers for survey for unprovement of park and playground buildings and facilities (Special)

47569 Authorizes contract with state highway commission for improvement of state highway (Special)

47570 Sale of property (Special)

47571 Sale of property (Special)

47572 Sale of property, repeals Ord. 47484 (Special)

47573 Sale of property (Special)

47574 Prohibits right turn from McCausland Ave. to Hi-View Ave. (Repealed by 51833)

47575 Stop intersections, Montgomery Street and Glasgow Ave., North Market Street and Glasgow Ave. (Not codified)

47576 School stop, Madison Street and Hogan Street, Madison Street and Nineteenth Street (Not codified)

47577 Designates Fourth Street one-way street, parking thereon (Not codified)

47578 Designates Quincy Street and Salzburger Ave. one-way streets (Not codified)

47579 Designates Elmbank Ave. one-way street (Not codified)

47580 School stop, Newstead Ave. and San Francisco Ave., repeals Ord. 46507 (Not codified)

47581 Parking, San Francisco Ave. (Not codified)

47582 Stop intersection, Cottage Ave. and Prairie Ave., Whittier Street and St. Ferdinand Ave. (Not codified)

47583 Parking, Lindenwood Place (Not codified)

47584 Parking, Pernod Ave. (Not codified)

47585 Stop intersection, Ellendale Ave. and Southwest Ave. (Not codified)

47586 Parking, Seventeenth Street (Repealed by 49140)

47587 Parking, Carroll Street (Not codified)

47588 Stop intersection, Clifton Ave. and Rhodes Ave. (Not codified)

47589 Stop intersection, Iron Street and Virginia Ave. (Not codified)

47590 Stop intersection, Loughborough Ave. and Michigan Ave. (Not codified)

47591 Designates Knapp Street one-way street (Not codified)

47592 Parking, Seventeenth Street and Singleton Street (Not codified)

47593 Parking, Destrehan Street (Not codified)

47594 School stop, Chippewa Street and Iowa Ave. (Not codified)

47595 Stop intersection, Harney Ave. and Wren Ave. (Repealed by 48786)

47596 Adds § 7-PP, Ord. 45304, church stop, Benton Street and Twentieth Street (Not codified)

47597 Stop intersection, Hornsby Ave. and Newby Street (Not codified)

47598 School stop, Jefferson Ave. and Eugenia Street (Repealed by 49887)

47599 Stop intersection, Spruce Street and Leffingwell Ave. (Not codified)

47600 Stop intersection, Leffingwell Ave. and Clark Ave. (Not codified)

47601 Stop intersection, Broadway and Walnut Street, Walnut Street and Fourth Street (Not codified)

47602 Parking, Poplar Street (Not codified)

47603 Designates Botanical Street one-way street (Not codified)

47604 Authorizes contract with state highway commission for establishment of state highway (Special)

47605 Amends §§ 1—21, Ch. 40, Vol. 1, 1948 Code, milk and milk products (Repealed by 55834)

47606 Conveyance of property (Special)

47607 Conveyance of property (Special)

47608 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47609 Authorizes agreement with Village of Cahokia for construction of western approach to bridge (Special)

47610 Grants village of Cahokia easements and rights to acquire property for bridge (Special)

47611 Authorizes purchase of fire fighting equipment (Special)

47612 Directs issuance of bonds (Special)

47613 Authorizes contract for survey of hospital and health facilities (Special)

47614 Authorizes contracts for improvement of park and recreational area (Special)

47615 Authorizes contracts for survey of existing auditing, accounting and recording systems of city (Special)

47616 Authorizes contract for architectural and engineering services for public improvements (Special)

47617 Authorizes contracts for modernization of St. Louis Chronic Hospital (Special)

47618 Appropriation for acquiring right-of-way for state highway (Special)

47619 Appropriation for acquiring land for grade separation between Market Street and Grand Ave. (Special)

47620 Authorizes contracts for park and playground facilities (Special)

47621 Authorizes contracts for street improvements (Special)

47622 Authorizes contract for repair of Kingshighway Viaduct (Special)

47623 Authorizes contracts for street resurfacing (Special)

47624 Authorizes contracts for street lighting standards (Special)

47625 Authorizes contracts for fire station construction (Special)

47626 Authorizes contracts for modernization of various city offices and buildings (Special)

47627 Authorizes contracts for construction of garbage grinding plant (Special)

47628 Authorizes contracts for construction of incinerator (Special)

47629 Authorizes contracts for construction of refectory and comfort station and landscaping at Zoological Garden (Special)

47630 Authorizes agreement with land clearance for redevelopment authority for compensation to city (Special)

47631 Provides parole office employee salaries (4.38.010)

47632 Appropriation for damages (Special)

47633 Appropriation for damages (Special)

47634 Parking, Pattison Ave., repeals Ord. 45675 (Not codified)

47635 Amends § 20, Ch. 5, 1948 Code, intoxicating liquor (14.12.090, 14.12.100)

47636 Parking, Waterman Boulevard (Not codified)

47637 Stop intersection, Franklin Ave. and Leffingwell Ave. (Not codified)

47638 Traffic-control signals, Jefferson Ave. and Franklin Ave. (Not codified)

47639 Amends § 54, Ch. 5, 1948 Code, license transfer (Repealed by 51376)

47640 Vacates alley (Special)

47641 Provides relief for Anthony J. Denny (Special)

47642 Appropriation for damages (Special)

47643 Appropriation for damages (Special)

47644 Appropriation for damages (Special)

47645 Sale of property (Special)

47646 Sale of property (Special)

47647 Sale of property (Special)

47648 Sale of property (Special)

47649 Sale of property (Special)

47650 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47651 Vacates alley (Special)

47652 Vacates Pershing Ave. (Special)

47653 Ratifies grant agreement for federal aid project No. 9-23-034-510 (Special)

47654 Stop intersection, DeSoto Ave. and Emily Street (Not codified)

47655 Vacates Twenty-second Street, Biddle Street, alleys in blocks 961, 962 and 963 (Special)

47656 Provides relief for George Horwitz (Special)

47657 Additional appropriation for replacing expansion joints on Douglas MacArthur Bridge (Special)

47658 Vacates part Twelfth Street (Special)

47659 Sale of property (Special)

47660 Authorizes contracts for architectural and engineering services for improvement of park and recreational facilities in Benton Park and Hyde Park (Special)

47661 Appropriation for acquisition of property (Special)

47662 Appropriation for damages (Special)

47663 Appropriation for circuit attorney for investigation and prosecution of crimes (Special)

47664 Amends § 1(7), Ord. 47616, contracts for improvements (Special)

47665 Additional appropriation for reconstruction of Twenty-first Street Bridge (Special)

47666 Sale of property (Special)

47667 Sale of property (Special)

47668 Sale of property (Special)

47669 Sale of property (Special)

47670 Sale of property (Special)

47671 Sale of property (Special)

47672 Sale of property (Special)

47673 Sale of property (Special)

47674 Sale of property (Special)

47675 Sale of property (Special)

47676 Sale of property (Special)

47677 Sale of property (Special)

47678 Transfer of female inmates from city workhouse to city jail and commitment to city jail (Ch. 16.20)

47679 Authorizes contracts for water screens and buildings for wet well, reconstruction of coagulant house (Special)

47680 Repeals Ord. 47033 (Repealer)

47681 Repeals paragraph 4, of subsection A, § 10, Part 3, 1948 Code (26.36.020)

47682 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47683 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47684 Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)

47685 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47686 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

47687 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47688 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47689 Vacates alley (Special)

47690 Provides for election of freeholders for revising charter (Special)

47691 Sale of property (Special)

47692 Amends § 33, Ch. 15, 1948 Code, court costs for violation of ordinances (3.08.240)

47693 Improvement, Hampton Ave. (Special)

47694 Improvement, Hampton Ave. (Special)

47695 Playground stop, Hadley Street and Warren Street (Not codified)

47696 Designates Virginia Ave. major street (Not codified)

47697 Designates Michigan Ave. major street (Not codified)

47698 Designates Farlin Ave. one-way street (Not codified)

47699 Designates Miami Street one-way street (Not codified)

47700 Parking, Natural Bridge Ave. (Repealed by 48333)

47701 Prohibits certain commercial vehicles on alley, block 5754N (Not codified)

47702 Parking, Watson Road (Repealed by 48333, 49987)

47703 Adds § 7-QQ, Ord. 45304, church stop, Watson Road and Winnebage Street (Not codified)

47704 Parking, Chippewa Street (Not codified)

47705 Parking, Neosho Street (Not codified)

47706 Stop intersection, Broadway and Cherokee Street and Seventh Boulevard (Not codified)

47707 Parking, Nebraska Ave. (Not codified)

47708 Parking, Victor Street (Not codified)

47709 Parking, North Broadway (Not codified)

47710 Parking, Lindell Boulevard and Maryland Ave. (Not codified)

47711 Parking, Kemper Ave. (Not codified)

47712 Prohibits certain commercial vehicles, Lawn Ave. (Not codified)

47713 Prohibits certain commercial vehicles, Gustine Ave. (Not codified)

47714 Designates Pennsylvania Ave. major street (Not codified)

47715 Parking, Schirmer Street (Not codified)

47716 Repeals Ord. 35008 (Repealer)

47717 Parking, Cadet Ave. (Not codified)

47718 Stop intersection, Locust Boulevard and Ewing Ave., Lucas Ave. and Ewing Ave. (Not codified)

47719 Parking, Lawrence Street (Not codified)

47720 Traffic-control signals, various intersections (Not codified)

47721 Parking, Theresa Ave. (Not codified)

47722 Parking, Skinker Boulevard (Not codified)

47723 School stop, Glades Ave. and Prether Ave. (Not codified)

47724 School stop, Columbia Ave. and alley in block 4054B (Not codified)

47725 Playground stop, Glades Ave. and Prather Ave. (Not codified)

47726 Parking, Piccadilly Ave. (Not codified)

47727 Designates Fairview Ave. one-way street (Not codified)

47728 Designates Lilian Ave. major street (Not codified)

47729 Parking, Natural Bridge Ave. and Turner Ave. (Not codified)

47730 Prohibits certain commercial vehicles, West Park Ave. (Not codified)

47731 Stop intersection, Euclid Ave. and Maryland Ave. (Not codified)

47732 Parking, Cleveland Ave. (Not codified)

47733 Parking, Vandeventer Ave. (Not codified)

47734 Playground stop, Macklind Ave. and Daggett Ave. (Not codified)

47735 School stop, Hamilton Ave. and Kennerly Ave. (Repealed by 50732)

47736 Designates Crittenden Street one-way street (Not codified)

47737 Parking, Tennessee Ave. (Not codified)

47738 Parking, Pernod Ave. (Not codified)

47739 Parking, Lindell Boulevard (Not codified)

47740 Parking, Maryland Ave. (Not codified)

47741 Designates Buckingham Court and North Court one-way streets (Not codified)

47742 Conditional vacation, Dickson Street (Special)

47743 Vacates various streets and alleys (Special)

47744 Provides 40-hour week for city employees and overtime (Ch. 4.10)

47745 Traffic-control signals, Delmar Boulevard and Eighth Street (Not codified)

47746 School stop, Adkins Ave. and Walsh Street (Not codified)

47747 Adds § 7RR, Ord. 45304, church stop, Christy Boulevard and Rosa Ave. (Not codified)

47748 School stop, Twenty-second Street and Biddle Street, Twenty-second Street and Dickson Street (Not codified)

47749 Stop intersection, Thirteenth Street and Tyler Street (Not codified)

47750 Parking, Tenth Street (Not codified)

47751 Amends § 1, Ord. 47200, parking, Washington Drive (Not codified)

47752 Parking, Thirteenth Street and Utah Street (Not codified)

47753 School stop, Angelica Street and Glasgow Ave., Kossuth Ave. and Twenty-fifth Street (Not codified)

47754	Prohibits commercial vehicles Maffitt Ave. (Not codified)
47755	School stop, Cora Ave. and Maffitt Ave. (Not codified)
47756	Speed limit, Washington Boulevard (Repealed by 57831)
47757	Parking, Blair Ave. (Not codified)
47758	School stop, Blair Ave. and Bremen Ave. (Not codified)
47759	School stop, Blair Ave. and Linton Ave. (Not codified)
47760	Designates Fillmore Street and Dewey Ave. one-way streets (Not codified)
47761	Traffic-control signals, Page Boulevard and Prairie Ave. (Not codified)
47762	Traffic-control signals, Delmar Boulevard and Taylor Ave. (Not codified)
47763	Parking, Olive Street, amends § 1, Ord. 47000 (Not codified)
47764	Traffic-control signals, Prairie Ave. and Cass Ave. and Easton Ave. (Not codified)
47765	Designates Helen Street one-way street (Not codified)
47766	Traffic-control signals, various intersections (Not codified)
47767	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47768	Fire lane, Angelrodt Street (Not codified)
47769	Vacates various streets and alleys (Special)
47770	Amends § 1645, Part 1, Vol. 2, 1948 Code, schools (Repealed by 50502)
47771	Adds subsection 44(a), Ch. 52, Art. 3, 1948 Code, credits for work and good behavior (16.16.210)
47772	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47773	Fixes board fee for prisoners for 1956 (16.12.030)
47774	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
47775	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
47776	Sale of property (Special)
47777	Amends Ord. 47571, sale of property (Special)
47778	Recorder of deeds secretary salary (Ch. 4.34)
47779	Authorizes contract with state highway commission for establishment of state highway (Special)
47780	Improvement, Sharp Ave. (Repealed by 48399)
47781	Stop intersection, Pattison Ave. and Marconi Ave. (Not codified)
47782	Appropriation for three radio-equipped cars (Special)
47783	Sale of property (Special)
47784	Sale of property (Special)
47785	Alley improvement (Special)
47786	Appropriation for for acquisition of land (Special)
47787	Establishes route of Daniel Boone Expressway (Special)
47788	Vacates portion of Ranken Ave. (Special)
47789	Conditional vacation, various streets and alleys (Special)
47790	Vacates alley (Special)
47791	Vacates alley (Special)
47792	Vacates road (Special)
47793	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
47794	Sale of property (Special)
47795	Amends subsection A, § 12, Ord. 45309, use regulations in "F" local business district (Title 26)
47796	House of detention employees, repeals Ord. 46337 (4.40.040—4.40.070)
47797	Appropriation for development of Lambert-St. Louis Municipal Airport (Special)
47798	Appropriation for acquisition of land (Special)

47799 Authorizes contracts for survey for construction of additional facilities at Homer G. Phillips Hospital (Special)

47800 Appropriation for salary increases (Special)

47801 Sale of property (Special)

47802 Authorizes contracts for remodeling of room for municipal court (Special)

47803 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47804 Sale of property (Special)

47805 Sale of property (Special)

47806 Sale of property (Special)

47807 Sale of property (Special)

47808 Sale of property (Special)

47809 Sale of property (Special)

47810 Sale of property (Special)

47811 Additional appropriation for election board (Special)

47812 Amends Ord. 47618, appropriation for urban project U1891 (Special)

47813 Emergency appropriation (Special)

47814 Appropriation for acquisition of property (Special)

47815 Amends § 9, Ch. 60, 1948 Code, payments for children under control of board of children's guardians (3.36.155)

47816 Amends § 17, Ord. 46687, leaving scene of accident (Repealed by 57831)

47817 Widening of Gravois Ave. (Repealed by 50484)

47818 Sale of property (Special)

47819 Authorizes contracts for improvement of project A (Special)

47820 Sale of property (Special)

47821 Stop intersection, Texas Ave. and Pestalozzi Street (Not codified)

47822 Stop intersection, California Ave. and Potomac Street (Not codified)

47823 Designates alley, block 2484 one-way (Not codified)

47824 Designates alley, block 454 one-way (Not codified)

47825 Parking, Second Street (Not codified)

47826 Speed limit, Chouteau Ave., Fourteenth Street and Park Ave. (Repealed by 57831)

47827 Designates Oleatha Ave. one-way street (Not codified)

47828 School stops, Lee Ave. and Walbridge Place, Euclid Ave. and Lee Ave. (Not codified)

47829 Parking, Lexington Ave. (Not codified)

47830 School stop, Cote Brilliante Ave. and Prairie Ave. (Repealed by 50888)

47831 Parking, Pleasant Street (Not codified)

47832 Parking, Steins Street and Reilly Ave. (Not codified)

47833 Parking, Dolman Street, Geyer Ave., Thirteenth Street, Allen Ave. and Mississippi Ave. (Not codified)

47834 Designates alley, block 677 one-way (Not codified)

47835 Parking, Third Street (Not codified)

47836 Parking, Twelfth Street (Not codified)

47837 School stop, Henrietta Street and Theresa Ave. (Not codified)

47838 Parking, Spring Ave. (Not codified)

47839 Parking, Fifty-ninth Street (Not codified)

47840 Parking, Leffingwell Ave. (Not codified)

47841 Amends §§ 1 and 2, Ord. 45636, designates Chestnut Street and Lawton Boulevard one-way streets (Not codified)

47842 Parking, Ouida Ave. (Not codified)

47843 Amends § 1, Ord. 45820, concessions in parks (Repealed by 49771)

47844 Amends §§ 35, 36, 37 and 38, Ch. 27, 1948 Code, weeds (Ch. 11.04)

47845 Appropriation for land to extend garbage disposal plant (Special)

47846 Amends §§ 1 and 39, Art. 1, Ch. 72, 1948 Code, weights and measures (Repealed by 50077)

47847 Parking, Annetta Street (Not codified)

47848	Parking, Taimage Ave. (Not codified)
47849	Parking, Espenschied Street (Not codified)
47850	Parking, Clayton Ave. (Repealed by 50754, 50926)
47851	Repeals Ord. 46475 (Repealer)
47852	Traffic-control signals, various intersections (Not codified)
47853	Parking, Gratiot Street (Not codified)
47854	Parking, Ninth Street (Not codified)
47855	Parking, Fourteenth Street (Not codified)
47856	Parking, Twenty-fifth Street (Not codified)
47857	Parking, Nineteenth Street (Not codified)
47858	Parking, Broadway (Not codified)
47859	Traffic-control signals, Compton Ave. and Lafayette Ave., Compton Ave. and Park Ave. (Not codified)
47860	Parking, Lexington Ave. and Aubuert Ave. (Not codified)
47861	Parking, Shenandoah Ave. (Not codified)
47862	Parking, Spruce Street (Not codified)
47863	Parking, Leona Street (Not codified)
47864	Repeals § 2, Ord. 45816 and § 1, Ord. 46114 (Repealer)
47865	Regulates traffic permitted on Neosho Street (Not codified)
47866	Parking, Gravois Ave. (Not codified)
47867	Designates alley, block 3618 one-way (Not codified)
47868	Designates Murdoch Ave. one-way street (Not codified)
47869	Adds § 7-SS, Ord. 45304, church stop, Meramec Street and Michigan Ave. (Not codified)
47870	Parking, Lafayette Ave. (Not codified)
47871	Parking, Gratiot Street (Not codified)
47872	Parking, Skinker Boulevard (Not codified)
47873	Establishes alley, blocks 5619 and 5550 (Special)
47874	Establishes cutoff for Wells Ave. (Special)
47875	Establishes cutoff for St. Louis Ave. (Special)
47876	Amends §§ 1 and 2, Ord. 46716, establishes Jefferson Ave. (Special)
47877	Vacates alley (Special)
47878	Changes name of Des Peres Drive to Christy Drive (Special)
47879	Conditional vacation, Marconi Street (Special)
47880	Vacates Duncan Ave. and alleys, block 3918E (Special)
47881	Vacates alley (Special)
47882	Establishes Walton Place (Special)
47883	Sale of live fowl or rabbits (10.20.130—10.20.160)
47884	Stop intersection, Murdoch Ave. and Wherry Ave. (Not codified)
47885	Stop intersection, Commonwealth Ave. and Piccadilly Ave. (Not codified)
47886	Stop intersection, Childress Ave. and West Park Ave. (Not codified)
47887	Stop intersection, Carter Ave. and Warne Ave. (Not codified)
47888	Stop intersection, Third Street and Gratiot Street (Not codified)
47889	Stop intersection, Farrar Street and Twenty-fifth Street (Not codified)
47890	Stop intersection, Jefferson Ave. and Biddle Street and Gamble Street (Repealed by 50385)
47891	Parking, Page Boulevard (Not codified)
47892	Vacates Louis Street (Special)
47893	Vacates alley (Special)
47894	Amends §§ 2—23, repeals § 24, Ch. 71, 1948 Code, trees and shrubs (Repealed by 49772)
47895	Permanent condemnation commission salaries, repeals Ord. 44887 (Not codified)
47896	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (special)

47897 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47898 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

47899 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

47900 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

47901 Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)

47902 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

47903 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

47904 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

47905 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

47906 Repeals Ord. 46384 (Repealer)

47907 Appropriation for current expenses (Special)

47908 Establishes taxes for 1956 (5.26.010—5.26.050)

47909 Alley improvement (Special)

47910 Alley improvement (Special)

47911 Authorizes contract for traffic survey (Special)

47912 Appropriation for comprehensive transportation survey (Special)

47913 Sale of property (Special)

47914 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

47915 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

47916 Appropriation to purchase land for park (Special)

47917 Directs issuance of bonds (Special)

47918 Authorizes contracts for construction of health center and rehabilitation of Chronic Hospital (Special)

47919 Appropriation for completion of terminal building at Lambert-St. Louis Municipal Airport (Special)

47920 Additional appropriation for modernization of administration building and ward buildings of Max C. Starkloff City Hospital (Special)

47921 Authorizes contracts for improvement of Morgan Ford Road (Special)

47922 Authorizes contracts for improvements at parks and playgrounds (Special)

47923 Alley improvement (Special)

47924 Authorizes contracts for street and cut-off improvements (Special)

47925 Authorizes contracts for resurfacing streets (Special)

47926 Authorizes contracts for construction of civil defense control and communication center (Special)

47927 Authorizes contracts for street lighting standards (Special)

47928 Authorizes construction of underpass at Southwest Ave. (Special)

47929 Authorizes contracts for hospital quarters at Zoological Garden (Special)

47930 Authorizes contracts for surveys, plans and specifications for public improvements (Special)

47931 Establishes facilities for parking (Special)

47932 Appropriation for acquisition of land (Special)

47933 Fire lane, Angelrodt Street (Repealed by 49241)

47934 Improvement Arthur Ave. (Special)

47935 Repeals Ord. 42020 (Repealer)

47936 Sale of property (Special)

47937 Sale of property (Special)

47938 Sale of property (Special)

47939 Sale of property (Special)

47940 Sale of property (Special)

47941 Sale of property (Special)

47942 Authorizes contracts for park improvements (Special)

47943 Additional appropriation for reconstruction of Twenty-first Street Bridge (Special)

47944 Authorizes contracts for bridge on Loughborough Ave. and replacing bridge over Missouri Pacific Railway Co. tracks (Special)

47945 Vacates Convent Street (Special)

47946 Authorizes contracts for construction of viaduct on Spring Ave. (Special)

47947 Authorizes contracts for Twelfth Street Viaduct and Fourteenth Street Viaduct (Special)

47948 Authorizes contracts for construction of offices and garage for garbage section (Special)

47949 Appropriation for acquiring rights-of-way routes (Special)

47950 Authorizes contracts for construction fire station No. 26, remodeling fire stations No. 28, 33, 35 and 42 (Special)

47951 Authorizes contracts for reconstruction of heating plant in City Hall, repair of roof at Kiel Auditorium (Special)

47952 Authorizes contracts for comprehensive transportation survey (Special)

47953 Establishes Bancroft Ave. (Special)

47954 Amends §§ 6 and 7, Ch. 1, 1948 Code, official time (1.24.010, 1.24.020)

47955 Provides relief for Polish Home Association, Inc. (Special)

47956 Classified service and compensation plan (Ch. 4.10)

47957 Provides for fair employment practices on public works projects paid by municipal funds or bond (Repealed by 51617)

47958 Metropolitan St. Louis vouth commission (Ch. 3.76)

47959 Authorizes acceptance of assets for support of Light Battery "A" of the National Guard (Special)

47960 Parking, Chippewa Street (Not codified)

47961 Parking, Fyler Ave. (Not codified)

47962 Designates Neosho Street one-way street (Not codified)

47963 Parking, Ferry Street (Not codified)

47964 Stop intersection, Bischoff Ave. and Marconi Ave. (Not codified)

47965 Traffic-control signals, various intersections (Not codified)

47966 Parking, Rosalie Ave. (Not codified)

47967 Designates alley, block 5234N one-way (Not codified)

47968 Parking, Ninth Street (Not codified)

47969 Parking, Market Place (Not codified)

47970 Traffic-control signals, Gravois Ave. and Gustine Ave. (Not codified)

47971 Amends § 490, Ch. 69, 1948 Code, parking, Chippewa Street (Not codified)

47972 Amends § 1, Ord. 47636, parking, Waterman Boulevard (Not codified)

47973 Designates Clarence Ave. one-way street (Not codified)

47974 Parking, Piedmont Ave. (Not codified)

47975 Prohibits trucks, alley, block 5844 (Not codified)

47976 Parking, Ninth Street (Not codified)

47977 Stop intersection, Euclid Ave. and McPherson Ave. (Not codified)

47978 Parking, Hickory Street (Not codified)

47979 Parking, Second Street (Not codified)

47980 Parking, Gustine Ave. (Repealed by 50903)

47981 School stop, Faderer Street and Leona Street (Repealed by 48596)

47982 Designates Edward Ave. one-way street (Not codified)

47983 Parking, Clayton Ave. (Not codified)

47984 Designates Itaska Street one-way street (Not codified)

47985	Designates Morgan Ford Road major street (Not codified)
47986	Parking, Newstead Ave. (Not codified)
47987	Amends § 26, adds § 26a, Ch. 72, 1948 Code, net weight of packaged commodities (Repealed by 50077)
47988	Amends § 1, Ord. 47371, structures over highways (20.24.010—20.24.040)
47989	Appropriation for installation of traffic regulation devices (Special)
47990	Vacates alley (Special)
47991	Vacates various streets and alleys (Special)
47992	Establishes alley (Special)
47993	Changes Hawk Ave. to St. Bernard's Lane (Special)
47994	Vacates various streets and alleys (Special)
47995	Conditional vacation, Russell Ave. (Special)
47996	Amends § 62, Ch. 69, 1948 Code, parking-in alleys (Not codified)
47997	Prohibits certain commercial vehicles, Westminster Place (Not codified)
47998	Traffic-control signals, Kingshighway Boulevard and Oakland Ave. (Not codified)
47999	Parking, Mallinckrodt Street (Not codified)
48000	Approves plan for redevelopment of certain blighted area (Special)
48001	Provides for director, assistant director, doctor and nurse for house of detention (4.40.010—4.40.030, 4.40.070)
48002	Parking, West Pine Boulevard, repeals part § 6, Ord. 46525 (Not codified)
48003	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
48004	Amends § 24, Ord. 45309, changes and amendments, repeals Ord. 47493 (Title 26)
48005	Establishes parking facilities (Repealed by 50075)
48006	Establishes facilities for parking (Repealed by 50076)
48007	Amends paragraph 1, subsection B, § 5, Ord. 45309, storage and signs in dwelling districts (26.16.030)
48008	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
48009	Conditional vacation, First Street (Special)
48010	Authorizes purchase of equipment for fire department (Special)
48011	Authorizes contracts for improvement of urban development area A-UR-MO1-1 (Special)
48012	Establishes sites for public health center (Special)
48013	Authorizes contract with state highway commission for construction and repair of sewers in Forest Park (Special)
48014	Makes provision for acquisition of property, for parking (Repealed by 53178)
48015	Conditional vacation, Chevrolet Ave., alleys, blocks 5733, 5734 and 5735 (Special)
48016	Establishes St. Louis Ave. (Special)
48017	Vacates portion Gravois Ave. (Special)
48018	Establishes cutoff for Wells Ave. (Special)
48019	Prohibits supplying intoxicating beer to minors (15.116.010)
48020	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
48021	Designates Clarence Ave. one-way street (Not codified)
48022	Designates Primm Street one-way street (Not codified)
48023	Prohibits certain commercial vehicles, Cecil Place (Not codified)
48024	Parking, Salisbury Street (Not codified)
48025	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
48026	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

48027 Adds §§ 42a, 42b and 42c, Ord. 46687, temporary closing of streets adjacent to elementary schools (Repealed by 57831)

48028 Prohibits certain commercial vehicles, Ohio Ave. (Not codified)

48029 Amends § 2, Ord. 44732, collection of rubbish (Ch. 11.02 Part II)

48030 Prohibits certain commercial vehicles, Wise Ave. (Not codified)

48031 Prohibits certain commercial vehicles, Victoria Ave. (Not codified)

48032 Prohibits certain commercial vehicles, Lloyd Ave. (Not codified)

48033 Sale of property (Special)

48034 Sale of property (Special)

48035 Sale of property (Special)

48036 Conditional vacation, alleys (Special)

48037 Authorizes contracts for improvement of Morgan Ford Road (Special)

48038 Amends § 2, Ord. 47931, parking facilities (Special)

48039 Amends § 2, Ord. 45701, establishes public highway (Special)

48040 Appropriation for damages (Special)

48041 Authorizes contracts for construction of hospital facilities at Homer G. Phillips Hospital (Special)

48042 Authorizes contracts for improvement of park and recreational facilities in Benton Park and Hyde Park (Special)

48043 Issuance of bonds for parking facilities (Special)

48044 Authorizes dedication for Hall Street a portion of waterworks conduit right of way (Special)

48045 Appropriation for damages (Special)

48046 Appropriation for acquisition of land (Special)

48047 Appropriation for salaries for law department engaged in condemnation (Special)

48048 Repeals Ord. 41860 (Repealer)

48049 Authorizes contracts for improvement, Hall Street (Special)

48050 Repeals paragraph 11, § 3, Ord. 46525 (Repealer)

48051 Parking, West Papin Street (Repealed by 48298)

48052 Adds § 7-UU, Ord. 45304, church stop, Washington Boulevard and Washington Way (Not codified)

48053 Adds § 7-TT, Ord. 45304, church stop, Whittier Street and Finney Ave. (Not codified)

48054 Adds § 7-VV, Ord. 45304, church stop, Grand Boulevard and Itaska Street (Not codified)

48055 Traffic-control signals, Euclid Ave. and Page Boulevard (Not codified)

48056 Parking, Kentucky Ave. (Not codified)

48057 Parking, Arlington Ave. (Repealed by 54001)

48058 Prohibits certain commercial vehicles, Hillsland Ave. (Not codified)

48059 Parking, Richert Ave. (Not codified)

48060 Parking, Park Ave. (Not codified)

48061 Playground stop, certain location of Central Ave. (Not codified)

48062 Parking, Gustine Ave. (Not codified)

48063 Parking, Bowen Street and Fillmore Street (Not codified)

48064 Adds § 7-WW, Ord. 45304, church stop, Haven Street and Virginia Ave. (Not codified)

48065 Regulates traffic permitted on Taft Ave. (Not codified)

48066 Playground stop, Montgomery Street and Nineteenth Street (Not codified)

48067 Adds § 1-A, Ord. 48022, parking, Primm Street (Not codified)

48068 Parking, Loughborough Ave. (Not codified)

48069 Playground stops, Eighteenth Street and Hickory Street, Hickory Street and Mississippi Ave. (Not codified)

48070 Parking, Hickory Street (Not codified)

48071 Adds § 6-A, Ord. 45304, church stop, Fair Ave. and West Florissant Ave. (Not codified)

48072	School stop, St. Louis Ave. and Warne Ave. (Not codified)
48073	School stop, Kennerly Ave. and Pendleton Ave. (Not codified)
48074	Repeals Ord. 45574 (Repealer)
48075	Parking, Prange Ave. (Repealed by 48805)
48076	Playground stop, Laurel Street and Westminster Place (Not codified)
48077	Parking, Bent Ave. (Not codified)
48078	Playground stops, Fairview Ave. and Giles Ave., Fairview Ave. and Grace Ave., Giles Ave. and McDonald Ave., Grace Ave. and McDonald Ave. (Not codified)
48079	Playground stops, Gustine Ave. and Keokuk Street, Dunnica Ave. and Gustine Ave. (Not codified)
48080	Prohibits certain commercial vehicles, West Pine Boulevard (Not codified)
48081	Adds § 7-XX, Ord. 45304, church stop, Arsenal Street and Louisiana Ave. (Not codified)
48082	Adds § 7-YY, Ord. 45304, church stop, Union Boulevard and Highland Ave. (Not codified)
48083	School stop, Lilian Ave. and Wren Ave. (Not codified)
48084	Parking, Gustine Ave. (Not codified)
48085	Parking, Holt Ave. (Not codified)
48086	Repeals Ord. 45923 (Repealer)
48087	Prohibits certain commercial vehicles, Brannon Ave. (Not codified)
48088	Adds § 7-ZZ, Ord. 45304, church stop, Cook Ave. and Spring Ave. (Not codified)
48089	School stop, Louisiana Ave. and Walsh Street (Not codified)
48090	School stop, Canaan Ave. and Newby Street (Not codified)
48091	Traffic-control signals, Cherokee Street and Gravois Ave. (Not codified)
48092	Adds § 6-B, Ord. 45304, church stop, Laclede Ave. and Leonard Ave. (Not codified)
48093	School stop, Crittenden Street and Pennsylvania Ave. (Not codified)
48094	Ratifies grant agreement for federal aid project No. 9-23-034-57711 (Special)
48095	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
48096	Authorizes contracts for furnishing electricity to public places (Special)
48097	Authorizes contracts for electricity to Chain of Rocks Pumping Station (Special)
48098	Authorizes contracts with state highway commission for establishment of state highway (Special)
48099	Conditional vacation, alley (Special)
48100	Vacates alley (Special)
48101	Vacates alley (Special)
48102	Sale of property (Special)
48103	Sale of property (Special)
48104	Sale of property (Special)
48105	Sale of property (Special)
48106	Alley improvement (Special)
48107	Amends paragraph 19, § 4, Ord. 46525, parking, Jefferson Ave. (Not codified)
48108	Authorizes contracts for construction of parking lot (Special)
48109	Designates Rosa Ave. one-way street (Not codified)
48110	Regulates traffic permitted on Maury Ave. (Not codified)
48111	Traffic-control signals, Laclede Ave. and Kingshighway Boulevard (Not codified)
48112	Traffic-control signals, Audubon Ave. and Kingshighway Boulevard (Not codified)
48113	School stop, Kingshighway Boulevard and McRee Ave. (Not codified)
48114	Parking, Kingshighway Boulevard (Repealed by 57831)
48115	Designates Elizabeth Ave. one-way street (Not codified)
48116	Parking, Southwest Ave. (Not codified)

48117 School stop, Nebraska Ave. and Osage Street (Not codified)

48118 Designates Eichelberger Street one-way street (Not codified)

48119 School stops, St. Louis Ave. and Eleventh Street, Hebert Street and Eleventh Street, Hebert Street and Hadley Street, St. Louis Ave. and Hadley Street, Hadley Street and Wright Street (Not codified)

48120 Parking, Broadway (Not codified)

48121 Parking, Blair Ave. (Not codified)

48122 School stop, Franklin Ave. and Nineteenth Street (Not codified)

48123 School stop, Laurel Street and Westminster Place (Not codified)

48124 Designates Highland Ave. one-way street (Not codified)

48125 Repeals Ord. 45333 (Repealer)

48126 Parking, Second Street (Not codified)

48127 School stop, California Ave. and Miami Street and Nebraska Ave. (Not codified)

48128 School stop, Morgan Ford Road and Wyoming Street (Not codified)

48129 Parking, Forest Park Ave. (Not codified)

48130 Parking, Natural Bridge Ave. (Not codified)

48131 Parking, Paul Street and Eighth Street, repeals Ord. 44406 and 42262 (Not codified)

48132 Parking, Thirteenth Street (Not codified)

48133 Appropriation for acquisition of land for public health center (Special)

48134 Authorizes contracts for work authorized by proposition No. 20 (Special)

48135 Authorizes contracts with state highway commission for acquisition of right-of-way for Mark Twain Expressway (Special)

48136 Authorizes agreement with USA for exchange of property (Special)

48137 Authorizes contracts for publishing and distributing reports for neighborhood rehabilitation program (Special)

48138 Provides for lease of property to Durward B. Young (Special)

48139 Amends § 33, Ch. 10, 1948 Code, fees for copies of birth and death records (11.62.350)

48140 Vacates Windham Ave., Woodland Ave. and alleys in blocks 4338-B-W, 4338-B-E and 6109 (Special)

48141 Vacates Gresham Ave. (Special)

48142 Conditional vacation, alley (Special)

48143 Vacates alley (Special)

48144 Vacates alley (Special)

48145 Vacates alley (Special)

48146 Appropriation for investigation of housing conditions (Special)

48147 Amends § 33, Art. 1, 1948 Code, weights and measures (Repealed by 50077)

48148 Repeals Ord. 46993 (Repealer)

48149 Authorizes sale of rubbish collected (Ch. 11.02)

48150 Repeals Ord. 43469 (Repealer)

48151 Designates alley, block 180 as Cinerama Way (Special)

48152 Establishes Jefferson Ave. (Special)

48153 Amends § 279, Art. 2, Part 1, Vol. 2, 1948 Code, major separations by distance (Repealed by 50502)

48154 Amends § 850, Part 1, Vol. 2, 1948 Code, lower terminus (Repealed by 50502)

48155 Amends § 1482, Part 1, Vol. 2, 1948 Code, sign inspection and fees (Repealed by 50502)

48156 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

48157 Open air farmers and produce markets (11.44.360—11.44.510)

48158 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

48159 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

48160 Sale of property (Special)

48161 Vacates Race Course Ave. (Special)

48162 Amends Ord. 47552, establishes alley (Special)

48163 Designates Devonshire Ave. one-way street (Not codified)

48164 Parking, St. Ange Ave., repeals Ord. 45047 (Not codified)

48165 Designates Salisbury Street major street (Not codified)

48166 Appropriation for damages (Special)

48167 Appropriation for claim settlement from explosion (Special)

48168 Provides for installation of coin-operated television sets in city hospitals (12.04.050, 12.04.060)

48169 Designates Devonshire Ave. one-way street (Not codified)

48170 Sale of property (Special)

48171 Vacates portion Riverview Drive (Special)

48172 Conditional vacation, Maeder Street (Special)

48173 Amends § 22, Ch. 27, 1948 Code, burning garbage (Ch. 11.02 Part II)

48174 Amends § 32, Ch. 25, 1948 Code, firemen's retirement system (Ch. 4.18)

48175 Amends §§ 56 and 62, adds § 56a, Art. 4, Ch. 29, 1948 Code, municipal quays and warehouses, board of public service jurisdiction (21.12.020, 21.12.030)

48176 Authorizes contracts for incandescent lamps (Special)

48177 Sale of property (Special)

48178 Sale of property (Repealed by 48923)

48179 Sale of property (Special)

48180 Sale of property (Special)

48181 Appropriation for damages (Special)

48182 Appropriation for installation of main for combustible rubbish (Special)

48183 Appropriation for damages (Special)

48184 Parking, Gimblin Street (Not codified)

48185 Amends § 608, adds § 608a, Ch. 69, 1948 Code, parking, Lawton Boulevard and Chestnut Street (Not codified)

48186 Parking, Fyler Ave. (Not codified)

48187 Adds § 6-G, Ord. 45304, church stop, Aldine Place, Euclid Ave. and Theodosia Ave. (Not codified)

48188 Adds § 6-D, Ord. 45304, church stop, Horner Ave. and McCausland Ave. (Not codified)

48189 Repeals § 545, Ch. 69, 1948 Code, and § 741, Ch. 69, 1948 Code (Repealer)

48190 Parking, Randolph Street (Not codified)

48191 Adds § 2-A, Ord. 46287, church stop, Cook Ave. and Grand Boulevard (Not codified)

48192 Traffic-control signals, Columbia Ave. and Hampton Ave. (Not codified)

48193 Traffic-control signals, Gravois Ave. and Nebraska Ave. (Not codified)

48194 Traffic-control signals, Broadway and East Prairie Ave. (Not codified)

48195 Repeals paragraph 19, § 3, Ord. 46525 (Repealer)

48196 Sale of property (Special)

48197 Sale of property (Repealed by 51621)

48198 Vacates Fifty-ninth Street (Special)

48199 Provides relief for Ben Gastreich (Special)

48200 Prohibits certain commercial vehicles, Washington Boulevard (Not codified)

48201 Traffic-control signals, Gravois Ave. and Taft Ave., Bates Street and Morgan Ford Road (Not codified)

48202 Traffic-control signals, Holly Hills Boulevard and Morgan Ford Road (Not codified)

48203 Authorizes purchase of water main (Special)

48204 Prohibits commercial traffic, Riverview Boulevard and Goodfellow Boulevard (Not codified)

48205 Parking, Fourteenth Street, repeals paragraph 14, § 4, Ord. 46525 (Not codified)

48206 Sale of property (Special)

48207 Sale of property (Repealed by 49374)

48208 Repeals Ord. 46263 (Repealer)

48209 Parking, Chestnut Street (Repealed by 48381)

48210 Authorizes contracts for improvement, Broadway (Special)

48211 Additional appropriation for construction of office and garage for garbage section (Special)

48212 Amends § 98, Ch. 23, 1948 Code, treasury division employee salaries (4.26.010, 4.26.020)

48213 Parking, Montana Street and Broadway (Repealed by 49297)

48214 Amends § 1, Ord. 46879, parking, Shreve Ave. (Not codified)

48215 Designates McLaran Ave. major street (Not codified)

48216 School stops, Brement Ave. and Vest Ave., Twenty-fifth Street and Farrar Street (Not codified)

48217 Designates Gertrude Ave. one-way street (Not codified)

48218 Parking, Hereford Street (Not codified)

48219 Parking, Fair Ave. (Not codified)

48220 Traffic-control signals, Broadway and Humboldt Ave. (Not codified)

48221 Adds § 6-F, Ord. 45304, church stop, Fair Ave. and Margaretta Ave. (Not codified)

48222 Traffic-control signals, Enright Ave. and Franklin Ave. and Grand Boulevard (Not codified)

48223 Designates Palm Street one-way street (Not codified)

48224 Amends § 1, Ord. 48021, designates Clarence Ave. one-way street (Not codified)

48225 Parking, Lee Ave. (Not codified)

48226 Traffic-control signals, Christy Boulevard and Gravois Ave., Gravois Ave. and Holly Hills Ave. (Not codified)

48227 Regulates traffic permitted on Federer Place (Not codified)

48228 Traffic-control signals, Bell Ave. and Grand Boulevard (Not codified)

48229 Traffic-control signals, Broadway and East Taylor Ave. (Not codified)

48230 Traffic-control signals, Broadway, East Grand Boulevard and East Grand Ave. (Not codified)

48231 Traffic-control signals, Gravois Ave. and Kingshighway Boulevard and Cecil Place (Not codified)

48232 Prohibits certain commercial vehicles, Enright Ave. (Not codified)

48233 Parking, Boyle Ave. (Not codified)

48234 Traffic-control signals, Grand Boulevard, North Florissant Ave. and West Florissant Ave. (Not codified)

48235 Traffic-control signals, DeBaliviere Ave. and Lindell Drive (Not codified)

48236 Repeals Ord. 46771 (Repealer)

48237 School stop, Pattison Ave. and Hereford Street (Not codified)

48238 Traffic-control signals, Arsenal Street and Morgan Ford Road, Arsenal Street and south entrance to Tower Grove Park (Not codified)

48239 Traffic-control signals, Belt Ave. and Natural Bridge Ave., Kingshighway Boulevard and Penrose Street (Not codified)

48240 Traffic-control signals, Grand Boulevard and Shenandoah Ave. (Not codified)

48241 Traffic-control signals, Brannon Ave. and Chippewa Street (Not codified)

48242 Additional appropriation for salary increases (Special)

48243 Vacates Monroe Street and alley, block 327 (Special)

48244 Vacates walk (Special)

48245 Provides relief for Cecelia Stephenson and Maude Coyle (Special)

48246 Fixes prisoner board fee for 1957 (16.12.030)

48247 Amends § 2, Ord. 48005, parking facilities (Repealed by 50075)

48248 Improvement, McRee Ave. (Special)

48249 Appropriation for damages (Special)

48250 Compensation plan and duty schedule for parking meter division (4.30.010)

48251 Sale of property (Special)

48252 Additional appropriation for claims against city (Special)

48253 Appropriation for further development of Lambert-St. Louis Municipal Airport (Special)

48254 Vacates portion Germania Street, authorizes transfer of title (Special)

48255 Adds § 6-A, Ord. 45701, establishes Ellendale-McCausland Ave. (Special)

48256 Authorizes contract with State Highway Commission for purchase of land (Special)

48257 Improvement, Lansdowne Ave. (Repealed by 49040)

48258 Stop intersection, Fourteenth Street and Spruce Street (Not codified)

48259 Repeals Ord. 45814 (Repealer)

48260 Parking, Lafayette Ave. (Not codified)

48261 Parking, Scott Ave. (Not codified)

48262 Parking, St. Louis Ave. (Repealed by 50773)

48263 Parking, Market Street (Not codified)

48264 Repeals § 1, Ord. 47091 (Repealer)

48265 Amends § 1, Ord. 46884, prohibits certain trucks, Clayton Ave. (Not codified)

48266 School stop, Union Boulevard and Ashland Ave. (Not codified)

48267 Adds § 6-C, Ord. 45304, church stop, Cora Ave. and St. Louis Ave. (Not codified)

48268 Traffic-control signals, Delmar Boulevard and Goodfellow Boulevard (Not codified)

48269 Parking, Forest Park Ave. (Not codified)

48270 Traffic-control signals, Spring Ave. and Washington Boulevard (Not codified)

48271 Parking, St. Louis Ave. (Repealed by 50886)

48272 Stop intersection, Glasgow Ave. and Gamble Street (Not codified)

48273 Parking, Skinker Boulevard (Not codified)

48274 Traffic-control signals, Arsenal Street and Clifton Ave. (Not codified)

48275 Designates Roger Place major street (Not codified)

48276 Designates alley, block 1024 one-way (Not codified)

48277 Traffic-control signals, Broadway and Eiler Street, Broadway and Maeder Street, Broadway and Wyandotte Street (Not codified)

48278 Traffic-control signals, Angelica Street and Broadway (Not codified)

48279 Adds § 6-E, Ord. 45304, church stop, Emily Street and East Grand Boulevard (Not codified)

48280 Traffic-control signals, Fourteenth Street and Washington Ave. (Not codified)

48281 Parking, Eleventh Street (Not codified)

48282 School stop, Robert Ave. and Leona Street (Not codified)

48283 Traffic-control signals, Bates Street and Broadway (Not codified)

48284 Designates Delor Street one-way street (Not codified)

48285 Prohibits certain commercial vehicles, Berthold Ave. (Not codified)

48286 Parking, Kensington Ave. (Not codified)

48287 Traffic-control signals, Belt Ave. and Delmar Boulevard (Not codified)

48288 Traffic-control signals, Leffinwell Ave. and Washington Boulevard (Not codified)

48289 Repeals § 2, Ord. 46607 (Repealer)

48290 Appropriation for damages (Special)

48291 Amends § 5a, Ord. 45182, cooperation agreement with St. Louis Housing Authority (Special)

48292 Amends §§ 37—56, Ch. 56, 1948 Code, rat control (Repealed by 62853)

48293 Coroner and morgue employee salaries, repeals Ord. 47549 (Repealed by 49947)

48294 Parking, Enright Ave., repeals §§ 1(10) and 2(14), Ord. 46525 (Not codified)

48295 Adds §§ 1(32)(33)(34), §§ 2(45)(46)(47), Ord. 46525, parking, Newstead Ave. and Taylor Ave., repeals §§ 3(17)(18)(24), Ord. 46525 (Not codified)

48296 Amends §§ 4 and 5, Ord. 42496, parking Juniata Street, repeals § 3, Ord. 42496 (Not codified)

48297 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

48298 Repeals Ord. 48051 (Repealer)

48299 Traffic-control signals, Union Boulevard and Washington Boulevard, Kingshighway Boulevard and McPherson Ave. and Waterman Boulevard (Not codified)

48300 Designates Durant Ave. and Queens Ave. one-way streets (Not codified)

48301 Prohibits commercial traffic, Riverview Boulevard (Repealed by 48385)

48302 Prohibits commercial traffic, Kingshighway Boulevard (Not codified)

48303 Establishes Branch Street (Special)

48304 Designates Seventh Street one-way street (Not codified)

48305 Repeals Ord. 26300 (Repealer)

48306 Conditional alley vacation (Special)

48307 Vacates Jamieson Ave., transfer of title (Special)

48308 Vacates alley (Special)

48309 Vacates various streets and alleys (Special)

48310 Vacates alley (Special)

48311 Vacates alley (Special)

48312 Vacates portion Thirteenth Street (Special)

48313 Amends Ord. 47915, zoning changes (Special)

48314 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

48315 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

48316 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

48317 Concession for roller skates and ice skates at Mark C. Steinberg Memorial Skating Rink (22.20.060—22.20.090)

48318 Sale of property (Special)

48319 Sale of property (Special)

48320 Appropriation for modernizing street lighting system (Special)

48321 Amends Ord. 47621, improvement, certain streets (Special)

48322 Sale of property (Special)

48323 Sale of property (Special)

48324 Amends § 59, Ord. 46432, license collector employee salaries (Ch. 4.28)

48325 Amends § 2, Ord. 45669, license collector custodial employee salaries (4.28.010)

48326 Designates Alabama Ave. and Ivory Ave. major streets (Not codified)

48327 Parking, Lafayette Ave. (Repealed by 49453)

48328 Regulates traffic, Market Street and parking (Not codified)

48329 Regulates traffic, Gravois Ave. and parking (Repealed by 51198)

48330 Parking, Shenandoah Ave. (Not codified)

48331 Parking, Manchester Ave. (Not codified)

48332 Parking, Lafayette Ave. (Not codified)

48333 Parking, certain streets, designates Cardinal Ave. one-way street, repeals or amends various ordinances and sections 1948 Code (Not codified)

48334 Alley improvement (Special)

48335 Alley improvement (Special)

48336 Sale of property known as Rosalie Tilles Children's Playground and Park (Special)

48337 Amends §§ 35, 37, and 38, Ch. 27, 1948 Code, weeds (Ch. 11.04)

48338 Rooming houses, and hotels, repeals Ch. 32 §§ 1—81, 1948 Code, Ords. 45195, 45221 and 45683 (Repealed by 60828)

48339 Reporting of gunshot wounds and knife wounds (Ch. 12.56)

48340 Amends § 1, Ord. 47249, sheriff employee salaries (Repealed by 50173)

48341 Magistrate court employee compensation and classification schedule (4.24.010)

48342 Appropriation for branch libraries (Special)

48343 Relief for William A. and Bertha Washer (Special)

48344 Relief for Rose Barry and Ann Bokern (Special)

48345 Relief for Arthur A. and Evelyn Brinkmann (Special)

48346 Relief for Adam and Frances Kralik (Special)

48347 Relief for John and Evelyn Schwering (Special)

48348 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

48349 Establishes highway (Special)

48350 Vacates alley (Special)

48351 Establishes Spring Ave. (Special)

48352 Vacates alley (Special)

48353 Vacates First Street (Special)

48354 Orders election for ratification of charter (Failed)

48355 Designates blighted areas (Special)

48356 Improvement, Sharp Ave. (Special)

48357 Appropriation for acquisition of properties (Special)

48358 Sale of property (Special)

48359 Sale of property (Special)

48360 Sale of property (Special)

48361 Sale of property (Special)

48362 Sale of property (Special)

48363 Sale of property (Special)

48364 Sale of portion of Mount Lebanon Cemetery (Special)

48365 Alley improvement (Special)

48366 Appropriation for damages (Special)

48367 Appropriation for investigation of housing conditions (Special)

48368 Prohibits certain commercial vehicles, Lackland Ave. (Not codified)

48369 Parking, Bittner Street (Not codified)

48370 Parking, Ninth Street (Not codified)

48371 Prohibits certain commercial vehicles, Utah Place (Not codified)

48372 Parking, Poplar Street (Not codified)

48373 Parking, Fairview Ave. (Not codified)

48374 Parking, Fairview Ave. (Not codified)

48375 Amends § 3(22), Ord. 46525, parking, Sixteenth Street (Not codified)

48376 Parking, Bernard's Lane (Not codified)

48377 Parking, Eichelberger Street (Not codified)

48378 Appropriation for salaries for law department engaged in condemnation (Special)

48379 Amends § 29, Ch. 60, 1948 Code, sale of real estate owned by Bryan Mullanphy fund (Repealed by 50577)

48380 Authorizes acceptance of funds for improving Sherman Park (Special)

48381 Parking, Chestnut Street, repeals Ord. 48209 (Not codified)

48382 Parking, Skinker Boulevard (Not codified)

48383 Amends § 27, Ch. 14, 1948 Code, buses transporting people to and from points outside city (8.62.280)

48384 Stop intersection, Broadway and Chambers Street (Not codified)

48385 Prohibits commercial traffic, Riverview Boulevard and Goodfellow Boulevard, repeals Ord. 48204, 48301 (Not codified)

48386	Directs issuance of bonds (Special)
48387	Additional appropriation for rehabilitation of fire station No. 20 (Special)
48388	Appropriation for acquisition of property for parks and playgrounds (Special)
48389	Authorizes contracts for street improvements (Special)
48390	Appropriation for establishment of Locust Street (Special)
48391	Authorizes contracts for reconstruction of heating plant at municipal courts building, rehabilitation of Kiel Auditorium (Special)
48392	Authorizes contracts for construction of auditorium and elevator at City Art Museum (Special)
48393	Authorizes contracts for construction of branch library (Special)
48394	Authorizes contracts for construction of lion house at Zoological Garden (Special)
48395	Authorizes contracts for construction and improvements in various parks and playgrounds (Special)
48396	Additional appropriation for construction of underpasses at Southwest Ave. and proposed McCausland Ave. (Special)
48397	Authorizes contracts for construction and alteration of facilities for children's center (Special)
48398	Authorizes contracts for acquisition of site and construction of building for storing voting machines (Special)
48399	Repeals Ord. 47780 (Repealer)
48400	Vacates Twenty-third Street (Special)
48401	Appropriation for damages (Special)
48402	Designates Juniata Street and Hartford Street one-way streets (Not codified)
48403	Repeals Ord. 44250 (Repealer)
48404	Traffic-control signals, Natural Bridge Ave. and Cora Ave. (Not codified)
48405	Parking, Riverview Boulevard (Not codified)
48406	Repeals § 195, Ch. 69, 1948 Code (Repealer)
48407	Parking, Hereford Street (Not codified)
48408	Parking, Manchester Ave. (Not codified)
48409	Prohibits certain commercial vehicles, Lawn Ave. (Not codified)
48410	Parking, Marconi Ave. (Not codified)
48411	Parking, Bates Street (Not codified)
48412	Playground stop, Livingston Ave. and Wilmington Ave. (Not codified)
48413	Parking, Hereford Ave., repeals Ord. 44707 (Not codified)
48414	Repeals §§ 165, 355, Ch. 69, 1948 Code (Repealer)
48415	Parking, Daggett Ave. (Not codified)
48416	Parking, Jackson Street (Not codified)
48417	Parking, Bischoff Ave. (Not codified)
48418	Parking, Edwards Street (Not codified)
48419	Amends § 40, Art. 3, Ch. 5, Division 3, 1948 Code, intoxicating liquor license (14.28.010)
48420	Amends § 16, Ch. 37, 1948 Code, transfer of license (8.02.140)
48421	Amends §§ 53 and 54, Ch. 5, Art. 4, 1948 Code, nonintoxicating beer license (Repealed by 51376)
48422	Amends § 21, Ch. 5, 1948 Code, closing taverns on election day (14.12.110)
48423	Appropriation for damages (Special)
48424	Sale of property (Special)
48425	Authorizes contracts for construction of fire station No. 22 (Special)
48426	Purchase of land (Special)
48427	Repeals § 6, Ord. 48333 (Repealer)
48428	Amends § 4, Ch. 28, 1948 Code, gasoline storage tax (Repealed by 60735)
48429	Amends § 7, Ch. 19, 1948 Code, vehicle tax for crossing Douglas MacArthur Bridge (Repealed by 56514)
48430	Amends § 47, Ord. 46759, merchant tax (8.56.190)
48431	Amends § 49, Ord. 46759, merchant tax (8.56.100)

48432 Amends § 51, Ch. 13, 1948 Code, merchant license fees (Repealed by 60735)

48433 Amends § 15, Ch. 32, 1948 Code, hotel tax (Repealed)

48434 Repeals Ord. 47161 (Repealer)

48435 Levies property tax for hospitals (5.26.010)

48436 Levies property tax for recreation (5.26.060)

48437 Amends § 9, Ord. 45307, parking meters (Repealed by 49997)

48438 Authorizes transfer of funds (Special)

48439 Amends Part 3, 1948 Code, extends "F" local business district (Special)

48440 Amends § 8, Art. 1, Ch. 40, Vol. 1, 1948 Code, milk and milk products (Repealed by 55834)

48441 Sale of property (Special)

48442 Sale of property (Special)

48443 Amends § 3(8), Ord. 46525, parking, Grand Boulevard (Repealed by 48645, 49062)

48444 Conditional vacation, Steins Street and alley, block 3076 (Special)

48445 Prohibits certain commercial vehicles, Geraldine Ave. (Not codified)

48446 Parking, Arsenal Street (Not codified)

48447 Appropriation for damages (Special)

48448 Sale of property (Special)

48449 Sale of property (Special)

48450 Appropriation for current expenses (Special)

48451 Vacates alley (Special)

48452 Authorizes dedication of Koch Hospital Road to public use (Special)

48453 Prohibits unlawful sale of listings or advertising for government offices or charitable institutions (Ch. 15.98)

48454 Regulates use and authorizes charge for use of Mark C. Steinberg Memorial Skating Rink (Repealed by 49546)

48455 Improvement, January Ave. (Special)

48456 Appropriation for damages (Special)

48457 Appropriation for state expressway projects, establishes fund (Special)

48458 Authorizes contracts for resurfacing various streets (Special)

48459 Traffic-control signals, Chippewa Street and Donovan Ave. (Not codified)

48460 Parking, Leffingwell Ave., repeals § 610, Ch. 69, 1948 Code (Not codified)

48461 Amends § 2154, Ch. 69, 1948 Code, traffic-control signals, Compton Ave., Clark Ave., Market Street and Forest Park Ave. (Not codified)

48462 Authorizes contracts for construction of garage building at pipe yard (Special)

48463 Additional appropriation for work at Chain of Rocks Water Works (Special)

48464 Additional appropriation for work at Chain of Rocks Water Works (Special)

48465 Additional appropriation for work at Chain of Rocks Water Works (Special)

48466 Appropriation for damages (Special)

48467 Improvement, Northrup Ave. (Repealed by 48766)

48468 Additional appropriation for purchasing land for park (Special)

48469 Parking, Athlone Ave. and Red Bud Ave. (Repealed by 50422)

48470 Parking, Wilson Ave., repeals Ord. 44706 (Not codified)

48471 Authorizes contracts for improvement of park and recreation area (Special)

48472 Parking, Shaw Ave. (Not codified)

48473 Amends § 1, Ord. 47958, Metropolitan St. Louis youth commission (3.76.010)

48474 Parking, Leffingwell Ave., repeals § 241, Ch. 69, 1948 Code (Not codified)

48475 Establishes Rock Island Highway (Special)

48476 Establishes Scanian Ave. (Special)

48477 Traffic-control signals, Grand Ave. and Fairview Ave. (Not codified)

48478 Traffic-control signals, Grand Ave. and Wyoming Street (Not codified)

48479 Traffic-control signals, Grand Ave. and Juniata Ave. (Not codified)

48480 Sale of property (Special)

48481 Speed limit, commercial vehicles, Doddridge Ave. (Repealed by 57831)

48482 Parking, West Papin Street (Not codified)

48483 Speed limit, commercial vehicles, Halls Ferry Road (Repealed by 57831)

48484 Parking meters and parking meter commission, repeals Ords. 45307 and 45771 (Repealed by 49997)

48485 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

48486 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

48487 Authorizes contracts for reconstruction of vehicular deck of MacArthur Bridge (Special)

48488 Designates Wade Ave. one-way street (Repealed by 48488)

48489 Amends § 3(2), Ord. 48333, parking, Jefferson Ave. (Repealed by 51220)

48490 Parking, Jefferson Ave. (Repealed by 51220)

48491 Amends §§ 1(5) and 2(5), Ord. 48333, parking, Franklin Ave. (Not codified)

48492 Left turns from Grand Boulevard onto Page Boulevard and traffic-control signals (Not codified)

48493 Authorizes investment of funds in certificates or US bonds (5.12.030)

48494 Amends § 22, Ch. 19, 1948 Code, railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090, 20.06.100)

48495 Conditional vacation, alley, block 5404-W (Repealed by 50871)

48496 Additional appropriation for further development of Lambert-St. Louis Municipal Airport (Special)

48497 Amends § 2(6), Ord. 48333, parking, Halls Ferry Road (Not codified)

48498 Amends Art. 3, Ch. 60, 1948 Code, Mullanphy Board (Repealed by 50577)

48499 Parking, Spring Ave. (Not codified)

48500 Parking, Russell Ave. (Not codified)

48501 Traffic-control signals, Caroline Street and Grand Boulevard (Not codified)

48502 Traffic-control signals, Broadway and Itaska Street, Broadway and Mount Pleasant Street (Not codified)

48503 Parking, Riverview Boulevard (Not codified)

48504 Designates Holly Hills Ave. one-way street (Not codified)

48505 Parking, Twenty-first Street, repeals § 334, Ch. 69, 1948 Code (Not codified)

48506 Parking, Hebert Street (Not codified)

48507 Parking, Westminster Ave. (Not codified)

48508 Parking, Oregon Ave. (Not codified)

48509 Parking, Newstead Ave. (Repealed by 48762)

48510 Appropriation for damages (Special)

48511 Sale of property (Special)

48512 Amends § 92, Ch. 23, 1948 Code, collector of revenue employees (Ch. 4.44)

48513 Adds § 4, Ord. 48253, authorizes contracts for further development of Lambert-St. Louis Municipal Airport (Special)

48514 Adds § 4, Ord. 47797, authorizes contracts for further development of Lambert-St. Louis Municipal Airport (Special)

48515 Appropriation for insurance for Lambert-St. Louis Municipal Airport (Special)

48516 Appropriation for damages (Special)

48517 Sale of property (Special)

48518 Sale of property (Special)

48519 Sale of property (Special)

48520 Sale of property (Special)

48521 Parking, McPherson Ave. (Repealed by 48760)

48522 Parking, Lake Ave. (Not codified)

48523 Parking, McPherson Ave. (Repealed by 48761)

48524 Parking, Newstead Ave. (Repealed by 48763)

48525 Parking, Lawton Boulevard (Not codified)

48526 Playground stop, Leffingwell Ave. and Howard Street (Not codified)

48527 Parking, Dock Street (Not codified)

48528 Parking, Shaw Ave. (Not codified)

48529 Designates Jameton Street one-way street, regulates parking (Not codified)

48530 Adds § 6-I, Ord. 45304, church stop, Barton Street and Twelfth Street (Not codified)

48531 Adds § 6-H, Ord. 45304, church stop, Missouri Ave. and Sidney Street (Not codified)

48532 Parking, Gustine Ave. (Not codified)

48533 Parking, Daggett Ave. (Not codified)

48534 Parking, Edwards Street (Not codified)

48535 Parking, Shaw Ave. (Not codified)

48536 Parking, Shaw Ave. (Repealed by 48670)

48537 Parking, Hereford Ave. (Not codified)

48538 Parking, Wilson Ave. (Not codified)

48539 Repeals Ord. 47470, parking, Brand Boulevard (Not codified)

48540 Adds § 6J, Ord. 45304, church stop, Koeln Street and Michigan Ave. (Not codified)

48541 Parking, Taylor Ave. (Not codified)

48542 Parking, Kingshighway Boulevard (Not codified)

48543 Parking, Broadway (Not codified)

48544 Parking, Virginia Ave. (Not codified)

48545 Parking, Nebraska Ave. (Not codified)

48546 Parking, Arsenal Street (Not codified)

48547 Prohibits commercial vehicles, Jamieson Ave. (Not codified)

48548 Parking, Garrison Ave. (Not codified)

48549 Repeals §§ 1(11) and 2(11), Ord. 48333 (Repealer)

48550 Additional appropriation for repair of Twelfth Street viaduct and Fourteenth Street viaduct (Special)

48551 Relief for George Powell (Special)

48552 Names road on north side of Forest Park, Lindell Boulevard (Special)

48553 Sale of property (Special)

48554 Authorizes contracts for remodeling and construction at Max C. Starkloff Memorial Hospital (Special)

48555 Prohibits certain commercial vehicles, Harper Street (Not codified)

48556 Establishes commercial loading zone, Manchester Ave. (Not codified)

48557 Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)

48558 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

48559 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

48560 Sale of property (Special)

48561 Sale of property (Special)

48562 Sale of property (Special)

48563 Sale of property (Special)

48564 Sale of property (Special)

48565 Authorizes applications for help in repairs from storm damage (Special)

48566 Authorizes public library building in DeSoto Park (Special)

48567 Sale of property (Special)

48568 Sale of property (Repealed by 49087)

48569 Authorizes transfer of funds for lands acquired for park and playgrounds (Special)

48570 Heat to be furnished in building used for living quarters (Repealed by 56797)

48571 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

48572 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

48573 Amends § 6A, Ord. 45309, use regulations of "A" single-family dwelling district (Title 26)

48574 Amends § 2(24), Ord. 46525, parking, Manchester Ave.

48575 Designates Partridge Ave. one-way street (Not codified)

48576 Designates Oriole Ave. one-way street (Not codified)

48577 Designates Robin Ave. one-way street (Not codified)

48578 Designates Gilmore Ave. one-way street (Not codified)

48579 Parking, Daggett Ave. (Not codified)

48580 Parking, Clifton Ave. (Not codified)

48581 Left turn from Gravois Ave. to Morgan Ford Road (Not codified)

48582 Parking, Cherokee Street (Not codified)

48583 Parking, Devonshire Ave. (Not codified)

48584 Prohibits certain commercial vehicles, Reber Place (Not codified)

48585 Parking, Columbia Ave. (Not codified)

48586 Stop intersection, Lafayette Ave. and Grattan Ave. (Not codified)

48587 Repeals Ord. 45760 (Repealer)

48588 Repeals Ord. 45879 (Repealer)

48589 Parking, Twenty-third Street (Not codified)

48590 Prohibits certain commercial vehicles, Lindenwood Place, Childress Ave. and Nottingham Ave. (Not codified)

48591 Church stop, Fourteenth Street and Carr Street (Not codified)

48592 School stop, Leona and Wilmington Ave. (Not codified)

48593 Designates Lansdowne Ave. one-way street (Not codified)

48594 Designates Hillsland Ave. one-way street (Repealed by 48759)

48595 School stop, Leona and Federer Ave. (Repealed by 48778)

48596 Repeals Ord. 47981 (Repealer)

48597 Designates Adkins Ave. one-way street (Not codified)

48598 School stop, Belt and Bartmer Ave. (Not codified)

48599 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

48600 Appropriation for construction of building for emergency equipment at Lambert-St. Louis Municipal Airport (Special)

48601 Authorizes contract for crash, fire and rescue service at Lambert-St. Louis Municipal Airport (Special)

48602 Appropriation for emergency and snow removal equipment at Lambert-St. Louis Municipal Airport (Special)

48603 Authorizes contracts for street lighting (Special)

48604 Sale of surplus equipment and property, blocks 1716N and 4636N (Special)

48605 Improvement, Riverview Boulevard (Special)

48606 Amends Ch. 39, 1948 Code, meat and meat products (Ch. 11.48)

48607 Authorizes contracts for cable system for fire alarm headquarters (Special)

48608 Lease of property (Special)

48609 Amends § 6, Ch. 31, 1948 Code, changes name of Malcolm A. Bliss Psychopathic Institute to Malcolm Bliss Mental Health Center (12.04.030)

48610 Authorizes contracts for improvement, Broadway (Special)

48611 Amends §§ 19 and 21, Ch. 2, 1948 Code, board of aldermen employees salaries, repeals Ords. 45486, 45559 and 46336 (Repealed by 50052, 50574, 52743, 53377)

48612 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

48613 Authorizes exchange of lands (Special)

48614 Provides for acquisition of property for addition to City Hospital (Special)

48615 Amends Ord. 40437, bonds for completion of civil court building (Special)

48616 Alley improvement (Special)

48617 Sale of property (Special)

48618 Sale of property (Special)

48619 Amends § 1, Ord. 48394, appropriation for construction at Zoological Garden (Special)

48620 Traffic-control signals, Manchester Ave. and Newstead Ave. (Not codified)

48621 Stop intersection, Whittier Street and Maffitt Ave. (Not codified)

48622 Repeals § 1532, Ch. 69, 1948 Code (Repealer)

48623 Parking, Grand Boulevard (Not codified)

48624 Parking, Magnolia Ave. (Not codified)

48625 Prohibits left turns from Twelfth Street to Morrison Ave. or Rutger Street (Repealed by 57831)

48626 Traffic-control signals, Kingshighway Boulevard and McRee Ave. (Not codified)

48627 Parking, Laclede Ave. (Not codified)

48628 Church stop, Florissant Ave. and John Ave. (Not codified)

48629 Parking, Allen Ave. (Not codified)

48630 Parking, Twenty-third Street (Not codified)

48631 Repeals § 3, Ord. 46601 (Repealer)

48632 Repeals § 325, Ord. 40431 (Repealer)

48633 Church stop, Ivanhoe Ave. and Smiley Ave. (Not codified)

48634 Repeals § 5(13), Ord. 46525 (Repealer)

48635 Prohibits certain commercial vehicles, Bailey Ave. (Not codified)

48636 Prohibits certain commercial vehicles, Barrett Street (Not codified)

48637 School stop, Church Road and Veronica Ave. (Not codified)

48638 Church stop, Church Road and Theobald Ave. (Not codified)

48639 Parking, Bell Ave. (Not codified)

48640 Parking, Leonard Ave. (Not codified)

48641 School stop, Macklind Ave. and Botanical Ave. (Not codified)

48642 Designates Saloma Ave. one-way street (Repealed by 49721)

48643 Designates Woodstock Ave. one-way street (Repealed by 49722)

48644 School stop, Riverview Boulevard and Saloma Ave. (Repealed by 50104)

48645 Parking, Grand Ave., repeals § 3(8), Ord. 46525, Ords. 46869 and 48443 (Repealed by 49062)

48646 Amends §§ 6, 7, 11, 12, 13, 15, 16, 17, 19, 20 and 24, Ch. 55, 1948 Code, water division (23.06.020—23.06.040, 23.06.080—23.06.110, 23.06.140—23.06.160, 23.10.010, 23.10.020, 23.10.040, Chs. 23.12, 23.14)

48647 Amends §§ 1(5) and 2(5), Ord. 48333, parking, Franklin Ave. (Not codified)

48648 School stop, Whittier Street and Maffitt Ave. (Not codified)

48649 Parking, West Florissant Ave. (Not codified)

48650 Repeals Ord. 45927 (Repealer)

48651 Amends § 1, Ord. 45049, parking, Ashland Ave. (Not codified)

48652 Parking, Lindell Boulevard (Repealed by 49329)

48653 Parking, Kingshighway Boulevard (Not codified)

48654 Parking, Columbia Ave. (Not codified)

48655 Amends § 1, Ord. 48528, parking, Shaw Ave. (Not codified)

48656 Parking, Pershing Ave. (Not codified)

48657 Parking, West Papin Street (Not codified)

48658 Classified service and compensation plan (Ch. 4.10)

48659 Repeals Ord. 43470 (Repealer)

48660 Parking, Bayard Ave. (Not codified)

48661 Parking, Gustine Ave. (Not codified)

48662 Alley improvement (Special)

48663 Authorizes lease of property (Special)

48664 Amends § 2, Ord. 48386, issuance of bonds (Special)

48665 Conditional vacation, Water Street (Special)

48666 Vacates Eleventh Street (Special)

48667 Vacates Marceau Street (Special)

48668 Vacates Cornelia Street and Oak Street (Special)

48669 Prohibits certain commercial vehicles, Hereford Street (Not codified)

48670 Parking, Shaw Ave., repeals Ord. 48536 (Not codified)

48671 Amends § 1, Ord. 46141, parking, Hodiamont Ave. (Not codified)

48672 School stop, Maffitt Ave. and alley, parking, Maffitt Ave. (Repealed by 50830)

48673 Parking, Hodiamont Ave. (Not codified)

48674 Parking, in area between City Hall and municipal courts building (Repealed by 51481)

48675 Ratifies grant agreement for federal aid project no. 9-23-034-5812 (Special)

48676 Ratifies amendment to grant agreement for federal aid project no. 9-23-034-5711 (Special)

48677 Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)

48678 Appropriation for establishment of Jefferson Ave. (Special)

48679 Sale of property (Special)

48680 Sale of property (Special)

48681 Sale of property (Special)

48682 Sale of property (Special)

48683 Sale of property (Special)

48684 Sale of property (Special)

48685 Sale of property (Special)

48686 Vacates alley (Special)

48687 Vacates alley (Special)

48688 Vacates alley (Special)

48689 Amends Ord. 47743, conditional vacation, alleys and streets (Repealed by 50616)

48690 Parking, Cedar Street (Special)

48691 Amends § 1, Ord. 48503, parking, Riverview Boulevard (Not codified)

48692 Amends § 1, Ord. 46244, parking, West Florissant Ave. (Repealed by 51549)

48693 School stop, Robert Ave. and Whaley Ave. (Not codified)

48694 Parking, Armand Place (Not codified)

48695 Church stop, Lafayette Ave. and Missouri Ave. (Not codified)

48696 Parking, Thirteenth Street (Not codified)

48697 Parking, Washington Boulevard (Not codified)

48698 Parking, Thirteenth Street (Not codified)

48699 Amends § 5(16), Ord. 46525, parking, Washington Ave. (Not codified)

48700 Prohibits certain commercial vehicles, Winnebago Street and Phillips Place (Not codified)

48701 Parking, Park Ave. (Not codified)

48702 Playground stop, Illinois and Keokuk Streets (Repealed by 49445)

48703 Church stop, Ganble and Glasgow Aves. (Not codified)

48704 Repeals § 5(14), Ord. 46525 (Repealer)

48705 Parking, Montgomery Street (Not codified)

48706 Designates Wade Ave. one-way street, repeals Ord. 48488 (Not codified)

48707 Parking, Forsyth Boulevard (Not codified)

48708 Parking, Easton Ave. (Not codified)

48709 Parking, Papin Street (Not codified)

48710 Parking, Eighteenth Street (Not codified)

48711 Parking, Enright Ave. (Not codified)

48712 Parking, Ulena Ave. (Not codified)

48713 Parking, Ulena Ave. (Not codified)

48714 Parking, Walsh Street (Not codified)

48715 Speed limit, Quincy Ave., Parkwood Street, Blow Street and Radom Street (Repealed by 57831)

48716 Speed limit, Robert Ave., Parkwood Drive and Schirmer Street (Repealed by 57831)

48717	Parking, Arsenal Street (Not codified)
48718	Parking, Arsenal Street (Not codified)
48719	Parking, Arsenal Street (Not codified)
48720	Traffic-control signals, Chippewa Street and Sulphur Ave. (Not codified)
48721	Accepts bequest of property for playground, park or community center (Special)
48722	Sale of property (Special)
48723	Traffic-control signals, Skinker Boulevard and Waterman Ave. (Not codified)
48724	Authorizes contracts for improvement of recreation facilities in Hyde Park (Special)
48725	Authorizes contracts for acquisition and distribution of surplus commodities (Special)
48726	Authorizes contracts for flood control projection (Special)
48727	Appropriation for damages (Special)
48728	Appropriation for fees for acquisition of property (Special)
48729	Approves redevelopment plan for Mill Creek project (Special)
48730	Authorizes cooperation agreement with land clearance for redevelopment (Special)
48731	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
48732	Left turn signal, Lafayette Ave. to Grand Boulevard (Not codified)
48733	Stop intersection, Newstead Ave. and Maryland Ave. (Not codified)
48734	Amends § 1, subsection B-11, and § 3, Art. 1, Ch. 40, 1948 Code, milk and milk products (Repealed by 55834)
48735	Amends Part 3, 1948 Code, changes zoning to "C" four-family district (Special)
48736	Amends Ord. 48133, appropriation for acquisition of land (Special)
48737	Amends § 1, (7) and (9), Ord. 46525, parking, Chouteau Ave. and Manchester Ave. (Not codified)
48738	Sale of property (Special)
48739	Sale of property (Special)
48740	Establishes highway (Special)
48741	Establishes site for juvenile court (Special)
48742	Establishes Lansdowne Ave. (Special)
48743	Adds § I-A, Ord. 48152, establishes Jefferson Ave. (Special)
48744	Alley improvement (Special)
48745	Alley improvement (Special)
48746	Authorizes acquisition of property for health center sites, vacates alley, block 973 and portion Sheridan Ave. (Special)
48747	Amends § 67, Ch. 72, 1948 Code, fees charged by coal dealers (Repealed by 50071)
48748	Amends § 1, Ch. 61, 1948 Code, charity solicitations commission (Ch. 3.60)
48749	Appropriations for acquisition of land for Lambert-St. Louis Municipal Airport (Special)
48750	Additional appropriation for further development at Lambert-St. Louis Municipal Airport (Special)
48751	Amends § 18, paragraph 8, subsection A, Ord. 45309, off-street parking (26.76.020)
48752	Amends § 10, Ord. 45309, "D" multiple-family dwelling district (Ch. 26.36)
48753	Requires city counselor to defend fire department or members against claims arising from performance of duties (3.24.490)
48754	Amends § 2(32), Ord. 46525, parking, Olive Street (Repealed by 49057)
48755	Additional appropriation for salary increases (Special)
48756	Permits marked city vehicles to park in specified area without paying parking meters (Repealed by 57831)
48757	Authorizes contract for imprinting system at City Hospital No. I (Special)
48758	Repeals Ord. 46249 (Repealer)
48759	Designates Hillsiand Ave. one-way street, repeals Ord. 48594 (Not codified)
48760	Repeals Ord. 48521 (Repealer)

48761 Repeals Ord. 48523 (Repealer)

48762 Repeals Ord. 48509 (Repealer)

48763 Repeals Ord. 48524 (Repealer)

48764 Vacates streets and alleys (Special)

48765 Improvement, Northrup Ave. (Special)

48766 Repeals Ord. 48467 (Repealer)

48767 Repeals Ord. 48475 (Repealer)

48768 Amends § 2, Ord. 48439, establishes highway (Special)

48769 Vacates portion Eighth Street (Special)

48770 Conditional relinquishment of easement for highway (Special)

48771 Vacates portion Twelfth Street (Special)

48772 Vacates various streets and alleys (Special)

48773 Vacates Grand View Place (Special)

48774 Conditional vacation, alley, block 4750-WA (Special)

48775 Vacates portion Sidney Street (Special)

48776 Conditional alley vacation (Special)

48777 Allows persons convicted and imprisoned for violating city ordinances to serve on intermittent bases (Repealed by 49286)

48778 Repeals Ord. 48595 (Repealer)

48779 Repeals §§ 1, 2, 3 and 4, Ord. 46035 (Repealer)

48780 Repeals Ord. 45060 (Repealer)

48781 Repeals Ord. 46671 (Repealer)

48782 Repeals Ord. 46723 (Repealer)

48783 Repeals Ord. 45061 (Repealer)

48784 Repeals Ord. 45062 (Repealer)

48785 Repeals Ord. 45878 (Repealer)

48786 Repeals Ord. 47595 (Repealer)

48787 Repeals § 1, Ord. 45035 (Repealer)

48788 Repeals Ord. 46417 (Repealer)

48789 Repeals Ord. 42775 (Repealer)

48790 Repeals Ord. 46651 (Repealer)

48791 Repeals Ord. 46838 (Repealer)

48792 Repeals Ord. 43981 (Repealer)

48793 Repeals Ord. 46837 (Repealer)

48794 Repeals Ord. 46188 (Repealer)

48795 Amends § 13, Ch. 54, 1948 Code, soldiers' memorial building commission (3.56.290)

48796 Amends § 36, Ch. 26, 1948 Code, walls and ceilings of restaurants (Ch. 11.42)

48797 Amends §§ 53 and 54, Art. 2, Ch. 56, 1948 Code, keeping certain animals (Repealed by 62853)

48798 Establishes fire lane in alley, block 4409A (Not codified)

48799 Repeals Ord. 46307 (Repealer)

48800 Repeals Ord. 46356 (Repealer)

48801 Repeals Ord. 42977 (Repealer)

48802 Repeals Ord. 46621 (Repealer)

48803 Repeals Ord. 46619 (Repealer)

48804 Repeals §§ 1, 2, 3 and 4, Ord. 46670 (Repealer)

48805 Repeals Ord. 48075 (Repealer)

48806 Repeals Ord. 46357 (Repealer)

48807 Repeals Ord. 46354 (Repealer)

48808 Repeals Ord. 45532 (Repealer)

48809 Repeals §§ 1, 8, 11, Ord. 42566 (Repealer)

48810 Repeals Ord. 45529 (Repealer)

48811 Repeals §§ 2 and 3, Ord. 45880 (Repealer)

48812 Repeals Ord. 45418 (Repealer)

48813 Repeals § 5(10), Ord. 46525 (Repealer)

48814 Repeals §§ 1(3), 2(2) and 5(1), Ord. 46525 (Repealer)

48815 Repeals § 1(23), 2(31) and 5(9), Ord. 46525 (Repealer)

48816 Designates Rhodes Ave. one-way street (Not codified)

48817 Parking, Dorcas (Not codified)

48818 Amends § 1, Ord. 46141, parking, Hodiamont Ave. (Not codified)

48819 Parking, Thirteenth Street (Not codified)

48820 Designates Smiley Ave. one-way street (Not codified)

48821 Church stop, Kingshighway Boulevard and Terry Ave. (Not codified)

48822 Parking, Shenandoah (Not codified)

48823 Designates Farlin Ave. one-way street (Not codified)

48824 Amends § 1, Ord. 48583, parking, Devonshire Ave. (Not codified)

48825 Parking, Tower Grove Ave. (Not codified)

48826 School stop, Clara Ave. and Ridge Ave. (Not codified)

48827 Parking, Broadway (Not codified)

48828 Parking, Ashland Ave. (Not codified)

48829 Designates Richard Place one-way street (Repealed by 49236)

48830 Amends § 1, Ord. 48582, parking, Cherokee Street (Not codified)

48831 Parking, Twenty-third Street (Not codified)

48832 Parking, Taft Ave. (Not codified)

48833 Adds §§ 43, 44 and 45, Ch. 69, 1948 Code, yield right-of-way signs (Repealed by 57381)

48834 School stop, Leona and Federer Streets (Not codified)

48835 Designates Harney Ave. one-way street (Repealed by 49725)

48836 Purchase of property (Repealed by 49694)

48837 Designates Davison Ave. one-way street (Not codified)

48838 Designates Plover Ave. one-way street (Not codified)

48839 Designates Genevieve Ave. one-way street (Not codified)

48840 Designates Alcott Ave. one-way street (Not codified)

48841 Designates Claxton Ave. one-way street (Not codified)

48842 Designates Wren Ave. one-way street (Repealed by 49061)

48843 Designates Beacon Street one-way street (Not codified)

48844 Designates Arlington Ave. one-way street (Not codified)

48845 Amends § 1, Ord. 48062, parking, Gustine Ave. (Not codified)

48846 Amends §§ 1(25) and 2(35), Ord. 46525, parking, Russell Boulevard (Not codified)

48847 Designates Park Lane Ave. one-way street (Not codified)

48848 Designates Shulte Ave. one-way street (Not codified)

48849 Designates Thekla Ave. one-way street (Not codified)

48850 Designates Theodore Ave. one-way street (Not codified)

44851 Designates Lucille Ave. one-way street (Not codified)

48852 Designates Garesche Ave. one-way street (Not codified)

48853 Designates Lalite Ave. one-way street (Not codified)

48854 Designates Sherry Ave. one-way street (Not codified)

48855 Designates Laura Ave. one-way street (Not codified)

48856 Designates Calvin Ave. one-way street (Not codified)

48857 Designates Bessie Ave. one-way street (Not codified)

48858 Designates San Francisco Ave. one-way street (Not codified)

48859 Designates Anderson Ave. one-way street (Not codified)

48860 Designates Margarette Ave. one-way street (Not codified)

48861 Designates Sacramento Ave. one-way street (Not codified)

48862 Designates Walbridge Place one-way street (Not codified)

48863 Designates Clara Place one-way street (Not codified)

48864 Parking, Elliott Ave. (Not codified)

48865 Parking, Eighteenth Street (Not codified)

48866 Parking, Biddle Street (Not codified)

48867 Parking, Biddle Street (Not codified)

48868 Parking, Lansdowne Ave. (Not codified)

48869 Parking, Compton Ave. (Not codified)

48870 Parking, Des Peres Ave. (Not codified)

48871 Parking, Des Peres Ave. (Not codified)

48872 Parking, Des Peres Ave. (Not codified)

48873 Designates Cottage Ave. one-way street (Not codified)

48874 Parking, Papin Street (Not codified)

48875 Amends § 2, Ord. 47063, earnings tax (5.22.010, 5.22.020)

48876 Amends § 3, Ch. 8, 1948 Code, barber shop license tax (Repealed by 60735)

48877 Amends § 101, Ch. 13, 1948 Code, billiard table license tax (Repealed by 60735)

48878 Amends § 92, Ch. 13, 1948 Code, various licenses (Repealed by 60735)

48879 Amends § 56, Ch. 67, 1948 Code, bowling alley license tax (8.100.460)

48880 Amends § 12, Ch. 13, 1948 Code, chattel loan business license (Repealed by 52086)

48881 Amends § 21, Ch. 13, 1948 Code, commission merchant license (Repealed by 42086)

48882 Amends § 1, Ord. 45224, restaurants (11.42.240—11.42.250)

48883 Amends § 56, Ch. 72, 1948 Code, weights and measures (Repealed by 50077)

48884 Amends § 36, Ch. 72, 1948 Code, weights and measures (Repealed by 50077)

48885 Amends §§ 1971 and 1981, Part 1, Vol. 2, 1948 Code, boiler inspections (Repealed by 50502)

48886 Amends §§ 1383 and 1389, Part 1, Vol. 2, 1948 Code, elevator and escalator inspection (Repealed by 50502)

48887 Amends § 21, Art. 1, Ch. 59, 1948 Code, smoke abatement permit and inspection fees (Repealed by 50163)

48888 Amends § 33, Ch. 15, 1948 Code, court costs and fees (3.08.240)

48889 Amends § 63, Ord. 46432, cigarette tax (8.10.060)

48890 Amends § 62, Ord. 46432, cigarette dealer tax (8.10.050)

48891 Public garages (Ch. 8.76)

48892 Amends § 51, Ch. 13, 1948 Code, merchant license fees (Repealed by 60735)

48893 Amends § 47, Ord. 48430, merchants tax (8.56.190)

48894 Amends § 8, Ord. 46687, parking (Repealed by 57831)

48895 Issuance of bonds (Special)

48896 Amends §§ 1, 2, 3, 4, 5, 6, 7, 8, Ord. 40651, issuance of bonds (Special)

48897 Amends § 6, Ord. 48484, parking meters (Repealed by 49997)

48898 Amends § 12, Ord. 48484, parking meter violation tags (Repealed by 49997)

48899 Appropriation for city cost share of cooperation agreement with land clearance for redevelopment authority (Special)

48900 Establishes alley (Repealed by 51382)

48901 Amends § 4, Ch. 13, 1948 Code, financial agent or broker license (Repealed by 60735)

48902 Curb market merchant license (Repealed by 60735)

48903 Amends § 5, Ord. 46957, dog license (Ch. 10.04)

48904 Amends § 6, Ch. 1, 1948 Code, contractor and industrial license (Repealed by 50502)

48905 Amends § 8, Ch. 10, 1948 Code, embalmers tax (Repealed by 60735)

48906 Amends § 92, Ch. 13, 1948 Code, licenses (Repealed by 60735)

48907 Amends § 11, Ch. 56, 1948 Code, fumigator tax (Repealed by 60735)

48908 Amends § 25, Ch. 13, 1948 Code, commission merchant tax (Repealed by 60735)

48909 Amends § 2, Ch. 21, 1948 Code, employment agencies tax (8.40.020, 8.40.030, 8.40.040, 8.40.050)

48910 Amends § 4, Ch. 49, 1948 Code, pawnbroker tax (Repealed by 60735)

48911 Amends §§ 74, 76 and 78, Ch. 13, 1948 Code, photographers license (8.74.010, Repealed by 60735)

48912 Amends § 25, Ord. 46399, service car license (8.98.575)

48913 Amends § 57, Ch. 65, 1948 Code, taxicab license (Repealed by 58795)

48914 Amends § 25, Ch. 10, 1948 Code, undertakers tax (8.106.030)

48915 Amends Part 1, Vol. 2, Art. 2, 1948 Code, building permits, inspection fees, occupancy permits (Repealed by 50502)

48916 Amends § 12, division 2, Ord. 48338, lodging house inspection fees (Repealed by 60828)

48917 Amends § 1103, Part 1, Vol. 2, 1948 Code, plumbing permits (Repealed by 50502)

48918 Amends § 1087, Part 1, Vol. 2, plumbing inspection fees (Repealed by 50502)

48919 Amends §§ 1256 and 1257, Part 1, Vol. 2, 1948 Code, plumber licenses, repeals Ord. 45563 (Repealed by 50502)

48920 Amends §§ 3, 4, 6, 8 and 9, Ch. 35, 1948 Code, laundries and dry cleaning, repeals §§ 11, 12, 13 and 14 (8.52.030, 8.52.070, 8.52.090)

48921 Amends § 5, Ord. 48725, appropriation (Special)

48922 Sale of property (Special)

48923 Sale of property, repeals Ord. 48178 (Special)

48924 Sale of property (Special)

48925 Sale of property (Special)

48926 Sale of property (Special)

48927 Sale of property (Special)

48928 Authorizes sale of right of Union Electric Co. to install electrical apparatus (Special)

48929 Appropriation for law department staff engaged in condemnation (Special)

48930 Appropriation for acquisition of land (Special)

48931 Authorizes application for money for revision of garbage disposal system (Special)

48932 Authorizes contracts for construction of Crunden Branch Library (Special)

48933 Appropriation for acquisition of land for Mississippi River Flood Control protection project area (Special)

48934 Establishes land as part of Mississippi River Flood Control protection project (Special)

48935 Authorizes contracts for alteration to north entrance of City Art Museum (Special)

48936 Authorizes contract with state highway commission for state highway (Repealed by 49135)

48937 Authorizes contract with state highway commission for purchase of land (Special)

48938 Authorizes contract for air conditioning civil courts building (Special)

48939 Authorizes contract for resurfacing various streets (Special)

48940 Additional appropriation for repair of Fourteenth Street Viaduct and Jefferson Ave. Viaduct (Special)

48941 Authorizes contracts for construction of bridges on Forest Park Parkway (Special)

48942 Authorizes contracts for alterations at Zoological Gardens (Special)

48943 Authorizes contracts for street improvements (Special)

48944 Improvement and development of Jefferson National Expansion Memorial (Special)

48945 Parking, Allen Ave. (Not codified)

48946 School stop, Colorado and Bellerive Aves. (Not codified)

48947 School stop, Bellerive and Alabama Aves. (Not codified)

48948 Parking, Germania Street (Not codified)

48949 Parking, Odell Street (Not codified)

48950 Parking, Papin Street (Not codified)

48951 Parking, Kosciusko Street (Not codified)

48952 School stop, Scanlan Ave. and Tamm Ave. (Repealed by 50891)

48953 School stop, Smiley Ave. and Tamm Ave. (Repealed by 51652)

48954 Traffic-control signals, Arsenal Street and Nebraska Ave. (Not codified)

48955 Prohibits certain commercial vehicles, Newport Ave. (Not codified)

48956 Playground stop, Delor Ave. and Newport Ave. (Not codified)

48957 School stop, Delor and Newport Aves. (Not codified)

48958 Designates Twenty-fifth Street major street (Not codified)

48959 Prohibits certain commercial vehicles, Hartford Ave. (Not codified)

48960 Parking, Lindenwood Place (Not codified)

48961 Parking, Sidney Street (Not codified)

48962 Parking, West Florissant (Not codified)

48963 Prohibits certain commercial vehicles, McCausland Ave. (Not codified)

48964 Parking, California Ave. (Not codified)

48965 Prohibits certain commercial vehicles, Eichelberger Ave. (Not codified)

48966 Prohibits certain commercial vehicles, Alexander Street (Not codified)

48967 Parking, Clayton Road (Not codified)

48968 Parking, Ninth Street (Not codified)

48969 Prohibits certain commercial vehicles, Richert Place (Not codified)

48970 Parking, Easton Ave. (Not codified)

48971 Parking, East Grand Ave. (Not codified)

48972 Designates Hall Street major street (Not codified)

48973 Parking, McRee Ave. (Not codified)

48974 Designates Thirty-seventh at Taft Ave. a yield right-of-way (Not codified)

48975 Parking, Singleton Street (Not codified)

48976 Parking, Fifteenth Street (Not codified)

48977 Parking, Johnson Street (Not codified)

48978 Parking, Gratiot Street (Not codified) 49002

48979 Designates East Grand Ave. one-way street (Not codified)

48980 Designates alley, block 4556 one-way (Repealed by 51136)

48981 Fire lane, Lansdowne Ave. (Not codified)

48982 Prohibits certain commercial vehicles, HiView Ave. (Not codified)

48983 Amends § 12(11), Ord. 46525, designates Ninth Street one-way street (Not codified)

48984 Amends § 2(27), Ord. 46525, parking Ninth Street (Not codified)

48985 Prohibits certain commercial vehicles, Plainview Ave. (Not codified)

48986 Prohibits certain commercial vehicles, Bingham Ave. (Not codified)

48987 Designates alley, block 3883 one-way (Not codified)

48988 Designates Potomac Street one-way street (Not codified)

48989 Amends § 4(33), Ord. 46525, parking, Thirteenth Street (Not codified)

48990 Parking, Thirteenth Street (Not codified)

48991 Parking, Delmar Boulevard, repeals §§ 508 and 518, Ch. 69, 1948 Code (Not codified)

48992 Parking, Eleventh Street (Not codified)

48993 Authorizes contracts for architectural and engineering for improvement of John Russell Park (Special)

48994 Authorizes contracts for construction of portion of Compton Ave. relief sewer (Special)

48995 Appropriation for acquisition of property for establishment of Branch Street and highway (Special)

48996 Authorizes contracts for construction of parking garage at Chronic Hospital and receiving room and power plant at Homer G. Phillips Hospital (Special)

48997 Authorizes contracts for street lighting (Special)

48998 Authorizes contracts for park improvements (Special)

48999 Authorizes contracts for construction of municipal dock (Special)

49000 Authorizes contracts for construction of Children's Home and Children's Detention Center (Special)

49001 Appropriation for acquisition of property for Children's Custodial Institution (Special)

49002 Transfer of funds for purchase of land for park and playground (Special)

49003 Authorizes contracts for construction of out patient clinic building at Homer G. Phillips Hospital (Special)

49004 Amends § 3, Ord. 48380, appropriation (Special)

49005 Authorizes contracts for surveys for public improvements (Special)

49006 Authorizes contracts for construction at Max C. Starkloff City Hospital (Special)

49007 Amends Ord. 48393, branch library (Special)

49008 Amends § 61, Ch. 48, 1948 Code, adds § 61a, fishing in parks (Repealed by 49711)

49009 Amends Ord. 47930, architectural and engineering services at Chronic Hospital (Special)

49010 Authorizes contracts for improvement of Jefferson Ave. (Special)

49011 Levies tax rate for hospital purposes, amends Ord. 48435 (5.26.010)

49012 Amends § 1B-11, Art. 1, Ch. 40, 1948 Code, milk and milk products (Repealed by 55834)

49013 Alley improvement (Special)

49014 Appropriation for damages (Special)

49015 Vacates alley (Special)

49016 Authorizes execution of formal assurance of local cooperation in Mississippi River flood protection project (Special)

49017 Appropriation for acquiring rights of way for Daniel Boone and Mark Twain Expressways (Special)

49018 Ratifies grant agreement for federal airport aid project no. 9-23-034-5813 (Special)

49019 Amends § 2, Ord. 48498, sale of real estate belonging to Bryan Mullanphy Fund (Repealed by 50577)

49020 Sale of property (Special)

49021 Sale of property (Special)

49022 Sale of property (Special)

49023 Sale of property (Special)

49024 Appropriation for St. Louis and St. Louis County board of freeholders for city-county coordination (Special)

49025 Authorizes Terminal Railroad Association to relocate tracks (Special)

49026 Amends Ord. 42120 (Repealer)

49027 Amends § 4(35), Ord. 46525, parking, Thirteenth Street (Not codified)

49028 Vacates Virginia Ave. (Special)

49029 Vacates Barry Street and alley, block 699 (Special)

49030 Vacates Walton Ave. (Special)

49031 Conditional vacation, Belt Ave. (Special)

49032 Vacates portion North Florissant Ave. (Special)

49033 Authorizes option agreement with St. Louis Metropolitan Chamber of Commerce Industrial Park Corporation for airport (Special)

49034 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

49035 Amends Part 3, 1948 Code, extends "B" two-family dwelling district, repeals Ord. 45965 (Special)

49036 Appropriation for purchase of voting machines (Special)

49037 Establishes Elizabeth Ave. (Special)

49038 Establishes Locust Street (Repealed by 49371)

49039 Improvement, Lansdowne Ave. (Special)

49040 Repeals Ord. 48257 (Repealer)

49041	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49042	Designates Oleatha Ave. one-way street (Repealed by 59253)
49043	Designates Sutherland Ave. one-way street (Repealed by 49252)
49044	Designates Ashland Court one-way street (Repealed by 49249)
49045	Designates Milentz Ave. one-way street (Repealed by 49295)
49046	Designates Goethe Ave. one-way street (Repealed by 49261)
49047	Designates Elmer Ave. one-way street (Repealed by 49296)
49048	Establishes comptroller contingent fund (5.04.120)
49049	Parking, Magazine Street (Not codified)
49050	Parking, Magazine Street (Not codified)
49051	Permits vehicles to pass on right or left side on one-way streets (Repealed by 57831)
49052	Parking, Natural Bridge Ave. (Repealed by 50914)
49053	Designates Magazine Street one-way street (Not codified)
49054	Amends §§ 1(5) and 2(5), Ord. 48333, parking, Franklin Ave. (Not codified)
49055	Parking, East Grand Ave. (Not codified)
49056	Parking, Ferris Ave. (Repealed by 49351)
49057	Amends § 2(32), Ord. 46525, repeals Ord. 48754, parking, Olive Street (Not codified)
49058	Designates Seventeenth Street one-way street (Not codified)
49059	Prohibits certain commercial vehicles, January Ave. (Not codified)
49060	Prohibits certain commercial vehicles, Regal Place (Not codified)
49061	Designates Wren Ave. one-way street, repeals Ord. 48842 (Not codified)
49062	Parking, Grand Ave., repeals § 3(8), Ord. 46525, Ord. 46869, Ord. 48443 (Not codified)
49063	Establishes fire lane on Third Street (Not codified)
49064	Prohibits certain commercial vehicles, Macklind Ave. (Not codified)
49065	Yield right-of-way signs at Brennan Ave. with McArthur Ave. (Not codified)
49066	Stop intersection, Lindenwood Place and McCausland Ave. (Not codified)
49067	Speed limit, Halls Ferry Circle (Repealed by 57831)
49068	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49069	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49070	Appropriation for revision of general ordinances (Special)
49071	Amends § 10, Ord. 48484, parking meter fund (Not codified)
49072	Soliciting for beverage or merchandise by females (Title 14)
49073	Repeals Ord. 45380 (Repealer)
49074	Repeals Ord. 47378 (Repealer)
49075	Repeals Ord. 47333 (Repealer)
49076	Repeals §§ 2, 3, 4, 5, 6, 7, 9 and 10, Ord. 42566 (Repealer)
49077	Amends § 1, Ord. 46724, stop intersection, Beacon Ave. and Thekla Ave. (Not codified)
49078	Repeals Ord. 43438 (Repealer)
49079	Repeals Ord. 46623 (Repealer)
49080	Repeals § 9 (1 and 3), Ord. 46525 (Repealer)
49081	Repeals Ord. 46539 (Repealer)
49082	Repeals Ord. 44722 (Repealer)
49083	Amends §§ 4 and 9, Ch. 35, 1948 Code, laundries and dry cleaning (Repealed by 60735)
49084	Sale of property (Special)
49085	Sale of property (Special)

49086	Sale of property (Special)
49087	Sale of property, repeals Ord. 48568 (Special)
49088	Amends § 1(4), Ord. 47616, public improvements (Special)
49089	Appropriation for construction of traffic regulation devices (Special)
49090	Authorizes purchase of tabulating equipment (Special)
49091	Authorizes contracts for resurfacing various streets (Special)
49092	Amends § 1, adds § 6(a)(b), Ch. 23, 1948 Code, department of finance divisions (5.02.010, 5.02.060)
49093	Appropriation for acquisition of property, for children's custodial institutions (Special)
49094	Appropriation for acquisition of property, for children's custodial institutions (Special)
49095	Stop intersections (Not codified)
49096	Amends § 3(15), Ord. 46525, parking, Leffingwell Ave. (Not codified)
49097	Changes fiscal year dates (5.14.020)
49098	Vacates alley (Special)
49099	Sale of property (Special)
49100	Appropriation for current expenses (Special)
49101	Submits proposed amendments to charter to voters (Charter Art. VIII, Art. XIII, Art. XIV)
49102	Submits proposed amendments to charter to voters (Failed)
49103	Submits proposed amendments to charter to voters (Failed)
49104	Sale of property (Special)
49105	Authorizes contracts for construction of fire station No. 20 (Special)
49106	Authorizes contracts for construction of parking lot (Special)
49107	Vacates alley (Special)
49108	Vacates alley (Special)
49109	Amends § 6, Ord. 48484, parking meter spaces and zones (Repealed by 49997)
49110	Appropriation for survey for development of Compton Eads Area, West End Area and Fountain Park Area (Special)
49111	Creates urban redevelopment and neighborhood rehabilitation fund (Ch. 5.52)
49112	Sale of property (Special)
49113	Sale of property (Special)
49114	Authorizes acceptance of money for plans and estimates for improvements to garbage disposal system (Special)
49115	Amends Ord. 48933, Mississippi River flood control protection project area (Special)
49116	Vacates portion, Arthur Ave. (Special)
49117	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49118	Authorizes purchase of land (Special)
49119	Sale of property (Special)
49120	Sale of property (Special)
49121	Establishes highway (Special)
49122	Approves urban renewal plan for Kosciusko Project (Special) (Repealed by 49554)
49123	Authorizes cooperation agreement with land clearance for redevelopment authority for rehabilitation of Kosciusko Project (Special) (Repealed by 49555)
49124	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49125	Repeals Ord. 42829 (Repealer)
49126	Repeals Ord. 45587 (Repealer)
49127	Parking, Chestnut Street (Not codified)
49128	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49129	Vacates Maeder Street (Special)
49130	Conditional vacation of Hurck Street, alleys blocks 3195 and 3192 (Special)
49131	Sale of property (Special)
49132	Appropriation for payment of interest (Special)

49133	Vacates St. Ange Ave., portion alley, block 1250 (Repealed by 50248)
49134	Amends § 8, Ch. 10, 1948 Code, board of merchant's and manufacturer's tax equalization (8.04.010)
49135	Repeals Ord. 48936 (Repealer)
49136	Authorizes contract with state highway commission for establishment of highway (Special)
49137	Opens land for branch library (Special)
49138	Designates Finkman Ave. one-way street (Not codified)
49139	Stop intersection, Thirteenth Street and Soulard Ave. (Not codified)
49140	Parking, Seventeenth Street, repeals Ord. 47586 (Not codified)
49141	Parking, Seventh Street (Not codified)
49142	Parking, Minnesota Ave. (Not codified)
49143	Stop intersection, Cherokee Street and Nebraska Ave., repeals § 2-A(34), Ord. 49095 (Not codified)
49144	Prohibits certain commercial vehicles, Sulphur Ave. (Not codified)
49145	Prohibits certain commercial vehicles, Elizabeth Ave. (Not codified)
49146	Prohibits certain commercial vehicles, Daggett Ave. (Not codified)
49147	Parking, Chippewa Street (Not codified)
49148	Prohibits certain commercial vehicles, Bates Street (Not codified)
49149	Parking, Grand Ave. (Not codified)
49150	School stop, Holly Hills Boulevard and Leona Street (Not codified)
49151	Designates Taft Ave. one-way street (Not codified)
49152	Designates Gannett Ave. one-way street (Not codified)
49153	Repeals Ord. 45140 (Repealer)
49154	Designates Enenwood Ave. one-way street (Not codified)
49155	Parking, Easton Ave. (Not codified)
49156	School stop, St. Louis Ave. and Twenty-fifth Street (Not codified)
49157	Parking, Chippewa Street (Not codified)
49158	Parking, Waldemar Ave. (Not codified)
49159	Parking, O'Fallon Street (Not codified)
49160	Parking, Ninth Street (Not codified)
49161	School stop, Blair Ave. and Ferry Street (Not codified)
49162	Parking, Nebraska Ave. (Not codified)
49163	Parking, Allen Ave. (Not codified)
49164	Parking, Jefferson Ave. (Not codified)
49165	Parking, Carroll Street (Not codified)
49166	Designates alley, block 6191 one-way (Not codified)
49167	Parking, Carter Ave. (Not codified)
49168	Parking, Minnesota Ave. (Not codified)
49169	Parking, Doddridge Ave. (Not codified)
49170	Parking, Taylor Ave. (Not codified)
49171	Repeals Ord. 46198 (Repealer)
49172	Parking, Skinker Boulevard (Not codified)
49173	Designates Athlone Ave. one-way street (Not codified)
49174	Designates Red Bud Ave. one-way street (Not codified)
49175	Designates Ridge Ave. one-way street (Repealed by 50434)
49176	Designates Minerva Ave. one-way street (Repealed by 50435)
49177	Designates Maple Ave. one-way street (Repealed by 50147)
49178	Designates Vernon Ave. one-way street (Repealed by 50150)
49179	Designates Cabanne Ave. one-way street (Repealed by 50147, 50149)
49180	Designates Raymond Ave. one-way street (Repealed by 50147, 50151)
49181	Authorizes contracts for improvement, Gustine Ave. (Special)
49182	Adds §§ 17a, 17b and 17c, Ch. 46, 1948 Code, air guns, repeals § 17, Ch. 46 1948 Code (15.134.010, 15.134.020)
49183	Authorizes contracts for equipping St. Louis Chronic Hospital (Special)

49184	Authorizes contracts for construction of sewers at Koch Hospital (Special)
49185	Traffic-control signals, Broadway and Nagel Ave. (Not codified)
49186	Traffic-control signals, Beck Ave. and Meramec Street and Morgan Ford Road (Not codified)
49187	School stop, Utah Street and Oak Hill Ave. (Not codified)
49188	Stop intersection, Cherokee Street and Lemp Ave., repeals § 2-A(33), Ord. 49095 (Not codified)
49189	Amends § 13, Ch. 54, 1948 Code, Soldier's Memorial Building commission (3.56.290)
49190	Church stop, Holly Hills Boulevard and Leona Street (Not codified)
49191	School stop, Virginia Ave. and Koeln Ave. (Not codified)
49192	Designates Rosa Ave. one-way street (Not codified)
49193	Designates West Ave. one-way street (Not codified)
49194	Designates Grace Ave. one-way street (Not codified)
49195	Designates Thirty-seventh Street one-way street (Not codified)
49196	Stop intersection, Cologne Ave. and Eichelberger Street, repeals § 2-A(41), Ord. 49095 (Not codified)
49197	Prohibits certain commercial vehicles, Quincy Street (Not codified)
49198	Prohibits certain commercial vehicles, Southland Ave. (Not codified)
49199	Designates Steffens Ave. one-way street (Repealed by 50905)
49200	Conditional alley vacation (Special)
49201	Vacates Hebert Street (Special)
49202	Vacates alley (Special)
49203	Conditional alley vacation (Special)
49204	Amends § 54, Art. 4, Ch. 5, 1948 Code, alcoholic beverage license, repeals § 3, Ord. 48421 (Repealed by 51376)
49205	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49206	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
49207	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
49208	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
49209	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49210	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49211	School stop, Cass Ave. and Webster Ave. (Not codified)
49212	Playground stop, Bent Ave. and McDonald Ave. (Not codified)
49213	School stop, Laclede Ave. and Newstead Ave. (Not codified)
49214	Playground stop, West Iowa Ave. and Gasconade Street (Not codified)
49215	Playground stop, East Iowa Ave. and Gasconade Street (Not codified)
49216	Stop intersection, Shaw Ave. and Marconi Ave. (Not codified)
49217	Stop intersection, Lansdowne Ave. and McCausland Ave. (Not codified)
49218	Stop intersection, Tamm Ave. and West Park Ave. (Not codified)
49219	Stop intersection, Jamieson Ave. and Lindenwood Ave. (Not codified)
49220	Stop intersection, Fyler Ave. and Ivanhoe Ave. (Not codified)
49221	Playground stop, Lindenwood Place and Prather Ave. (Not codified)
49222	Parking, Maryland Ave. (Not codified)
49223	Stop intersection, Florissant Ave. and Harris Ave. (Not codified)
49224	Stop intersection, Seventh Street and Pestalozzi Street (Not codified)
49225	Stop intersection, Nottingham Ave. and Tamm Ave. (Not codified)
49226	Stop intersection, Jamieson Ave. and Pernod Ave. (Not codified)

49227	Stop intersection, Lafayette Ave. and Nebraska Ave. (Not codified)
49228	Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)
49229	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49230	Submits proposed amendment to charter to voters (Failed)
49231	Sale of property (Special)
49232	Sale of property (Special)
49233	Sale of property (Special)
49234	Parking, Mardel Ave. (Not codified)
49235	Repeals Ord. 46711 (Repeater)
49236	Designates Richard Place one-way street, repeals Ord. 48829 (Not codified)
49237	Parking, Carrie Ave. (Not codified)
49238	School stop, Fair Ave. and Carter Ave. (Not codified)
49239	Parking, Wyoming Street (Not codified)
49240	Parking, Farrar Street (Not codified)
49241	Repeals Ord. 47933 (Repealer)
49242	Parking, Farrar Street (Not codified)
49243	School stop, East Prairie Ave. and Twentieth Street (Not codified)
49244	Parking, Shenandoah Ave. (Not codified)
49245	Parking, Monroe Street (Not codified)
49246	Church stop, Delor Street and Newport Ave. (Not codified)
49247	Parking, Whittier Street (Not codified)
49248	Designates Palm Street one-way street (Not codified)
49249	Designates Ashland Court one-way street, repeals Ord. 49044 (Not codified)
49250	Parking, Prather Ave. (Not codified)
49251	Parking, Chippewa Street (Not codified)
49252	Designates Sutherland Ave. one-way street, repeals Ord. 49043 (Not codified)
49253	Designates Oleatha Ave. one-way street, repeals Ord. 49042 (Not codified)
49254	Designates Forest Ave. one-way street, repeals Ord. 44438 (Not codified)
49255	Parking, Washington Ave. (Not codified)
49256	Parking, Washington Ave. (Not codified)
49257	Designates Woodland Ave. one-way street (Not codified)
49258	Repeals Ord. 46306 (Repealer)
49259	Designates alley, block 5524 one-way (Not codified)
49260	Parking, Macklind Ave. (Not codified)
49261	Designates Goethe Ave. one-way, repeals Ord. 49046 (Not codified)
49262	Sale of property (Special)
49263	Sale of property (Special)
49264	Traffic-control signals, Grand Boulevard and Shaw Boulevard (Not codified)
49265	Repeals §§ 1, 2 and 4, Ord. 46652 (Repealer)
49266	Designates Tyrolean Ave. one-way street (Not codified)
49267	Parking, Arsenal Street (Not codified)
49268	Yield right-of-way signs, Garesche Ave. with Mimika Ave. (Not codified)
49269	Parking, Robin Ave. (Not codified)
49270	Parking, West Florissant Ave. (Not codified)
49271	Parking, West Florissant Ave., amends § 1, Ord. 48649 (Not codified)
49272	Removal of stop signs, Kingshighway-Bircher cutoff and Kingshighway Boulevard and Bircher Boulevard (Not codified)
49273	Parking, West Florissant Ave. (Repealed by 51581)
49274	Parking, Penrose Ave. (Not codified)
49275	Parking, Penrose Ave. (Not codified)

49276 Parking, San Francisco Ave., (Not codified)

49277 Parking, San Francisco Ave. (Not codified)

49278 Church stop, Spring Ave. and Russell Boulevard (Not codified)

49279 Designates Marquette Ave. one-way street (Not codified)

49280 Repeals Ords. 46415 and 45142 (Repealer)

49281 Designates Half Street one-way street (Not codified)

49282 Parking, Broadway (Not codified)

49283 Parking, St. Louis Ave. (Not codified)

49284 Parking, Rutger Street, repeals Ord. 45576 (Not codified)

49285 Parking, Papin Street (Not codified)

49286 Permits persons convicted of violating ordinances to serve sentences on intermittent basis, repeals Ord. 48777 (Ch. 16.24)

49287 Sale of property (Special)

49288 Authorizes exchange of land (Special)

49289 Vacates unnamed street, alley, block 2505 (Special)

49290 Vacates portion of Northrup Ave. (Special)

49291 Vacates alley (Special)

49292 Vacates alley (Special)

49293 Authorizes contracts for construction of laboratory building at City Hospital No. 1 (Special)

49294 Repeals Ord. 45734 and Ord. 43465 (Repealer)

49295 Designates Milentz Ave. one-way street, repeals Ord. 49045 (Not codified)

49296 Designates Elmer Ave. one-way street, repeals Ord. 49047 (Not codified)

49297 Parking, Broadway, repeals Ord. 48213 (Not codified)

49298 Parking, Sarah Street (Not codified)

49299 Parking, Olive Street (Not codified)

49300 Parking, Forest Park Boulevard (Not codified)

49301 Fire lane, Bernard Street (Not codified)

49302 Fire lane, Prospect Ave. (Not codified)

49303 Parking, Eighteenth Street (Not codified)

49304 Transfers electrical inspections from department of public utilities to department of public safety, §§ 2, 3, 4, 5, 9, 10, 14, 15, 18, 19, 20, 23, Part 2, 1948 Code (Repealed by 50502)

49305 Relief for Carl Bolch Oil Co. (Special)

49306 Appropriation for cost of cooperation agreement with land clearance for redevelopment authority (Special)

49307 Appropriation for land for park (Special)

49308 Establishes park, vacates alleys, block 3854 (Special)

49309 Directs issuance of bonds (Special)

49310 Establishes lands as part of Mississippi River flood control protection project (Special)

49311 Authorizes contracts for rights of way for flood control protection reaches 3 and 4 (Special)

49312 Parking, West Pine Boulevard (Not codified)

49313 Parking, Baldwin Street (Not codified)

49314 Authorizes contracts for construction of branch library (Special)

49315 Sale of property (Special)

49316 Appropriation for damages (Special)

49317 Authorizes contracts for surveys and plans for public improvements (Special)

49318 Division of budget, repeals Art. 2, Ch. 23, 1948 Code (Ch. 5.14)

49319 Authorizes erection of monument (Special)

49320 Repeals Ord. 33854 (Repealer)

49321 Conditional vacation, Christy Boulevard (Special)

49322 Amends § 3(2), Ord. 46525, parking, Broadway (Not codified)

49323 Parking, Sarah Street, repeals § 3(20), Ord. 46525 (Not codified)

49324	Stop intersection, Arsenal Street and Thirteenth Street (Not codified)
49325	Authorizes contracts for construction of parking lot (Special)
49326	Acquisition of property for parking (Special)
49327	Designates Clark Ave. one-way street (Not codified)
49328	Stop intersection, January Ave. and Southwest Ave., repeals § 1-A(91), Ord. 49095 (Not codified)
49329	Repeals Ord. 48652 (Repealer)
49330	Repeals § 4, Ord. 47361 (Repealer)
49331	Stop intersection, St. Bernard's Lane and Red Feather Highway (Not codified)
49332	Prohibits certain commercial vehicles, Allemania Street (Not codified)
49333	Parking, Pleasant Street (Not codified)
49334	Parking, North Florissant Ave. (Not codified)
49335	Designates Switzer Ave. major street (Not codified)
49336	Parking, Church Road (Not codified)
49337	Parking, Christian Ave. (Not codified)
49338	Parking, Madison Street (Not codified)
49339	Fire lane, Christy Boulevard (Not codified)
49340	Parking, Thirteenth Street (Not codified)
49341	Parking, West Pine Boulevard (Not codified)
49342	Alley improvement (Special)
49343	Establishes site for park, vacates alleys, block 4554 (Special)
49344	Fixes board fee for prisoners (16.12.030)
49345	Authorizes contracts for repair of streets and alleys in Fountain Park area (Special)
49346	Authorizes contracts for improvement, Yeatman Square (Special)
49347	Appropriation for acquisition of land for park (Special)
49348	Additional appropriation for construction of aquatic house at Zoological Park (Special)
49349	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49350	Parking, Austria Street (Repealed by 51828)
49351	Parking, Ferris Ave., repeals Ord. 49056 (Repealed by 50338)
49352	Parking, Twenty-first Street (Not codified)
49353	Traffic-control signals, Grand Ave. and Forest Park Boulevard (Not codified)
49354	School stop, Sarah Street and Evans Ave. (Not codified)
49355	Parking, Arsenal Street (Not codified)
49356	Parking, Frieda Ave. (Not codified)
49357	Stop intersection, Taylor and Laclede Ave., repeals § 1-A(134), Ord. 49095 (Not codified)
49358	Stop intersection, Laclede Ave. and Newstead Ave., § 1-A(109), Ord. 49095 (Not codified)
49359	Repeals § 4(7) Ord. 49095 (Repealer)
49360	Removal of stop signs, Poepping Street and Michigan Street, Hurck Street and Michigan Street (Not codified)
49361	Removal of stop signs, Poepping Street and Virginia Street (Not codified)
49362	Parking, Dolman Street (Not codified)
49363	Parking, Lafayette Ave. (Not codified)
49364	Designates Newport Ave. one-way street (Not codified)
49365	Designates Neosho Street one-way street (Not codified)
49366	Parking, Fall Ave. (Not codified)
49367	Designates Lawn Ave. one-way street (Not codified)
49368	Vacates School Street (Special)
49369	Vacates portion, Allen Ave. (Special)
49370	Vacates portion, alley, block 930 (Special)
49371	Repeals Ord. 49038 (Repealer)

49372	Church stop, Locust Boulevard and Ewing Ave. (Not codified)
49373	Sale of property (Special)
49374	Sale of property, repeals Ord. 48207 (Special)
49375	Sale of property (Special)
49376	Sale of property, grants easements in blocks 2197 and 2198 (Special)
49377	Appropriation for costs of cooperation agreement with land clearance for redevelopment authority (Special)
49378	Appropriation for acquisition of property (Special)
49379	Transfer of money (Special)
49380	Provides for election to authorize issuance of bonds (Special)
49381	Amends §§ 22, 23, 26 and 56, Ch. 55, 1948 Code, water rates (23.04.220, 23.16.010, Ch. 23.18, 23.20.010—23.20.030)
49382	Authorizes issuance of bonds (Special)
49383	Appropriation for work at Chain of Rocks waterworks (Special)
49384	Appropriation for work at Chain of Rocks waterworks (Special)
49385	Authorizes contracts for construction at Chain of Rocks (Special)
49386	Authorizes contracts for flag poles at Soldier's Memorial (Special)
49387	Additional appropriation for construction of municipal dock (Special)
49388	Appropriation for purchase of voting machines (Special)
49389	Appropriation for construction at Lambert-St. Louis Municipal Airport (Special)
49390	Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)
49391	Amends Ord. 48772, conditional vacation, certain streets and alleys (Special)
49392	Vacates alley (Special)
49393	Vacates alley (Special)
49394	Requires real estate signs to indicate use zoning district (Ch. 15.90)
49395	Defines blighted areas (Special)
49396	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49397	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49398	Amends § 57, Ch. 72, 1948 Code, designates certain acts by weigher misdemeanors (Repealed by 50077)
49399	Authorizes contracts for improvement, Fourteenth Street, Jefferson Ave. and Spring Ave. (Special)
49400	Authorizes contracts for resurfacing various streets (Special)
49401	Appropriation for acquisition of property (Special)
49402	Appropriation for acquiring rights of way for Mark Twain and Daniel Boone expressways (Special)
49403	Additional appropriation for children's center (Special)
49404	Parking lot meter hours (17.62.370)
49405	Sale of property (Special)
49406	Authorizes contracts for construction of fire station No. 1 (Special)
49407	Authorizes contracts for park improvements (Special)
49408	Authorizes contracts for rehabilitation of buildings and construction of gymnasium at Missouri Hills (Special)
49409	Appropriation for damages (Special)
49410	Authorizes contracts for street lighting (Special)
49411	Amends § 4, Ch. 35, 1948 Code, laundries and dry cleaning (Repealed by 60735)
49412	Appropriation for purchase of voting machines (Special)
49413	Authorizes exchange of land (Special)
49414	Sale of property (Special)
49415	Conditional vacation, various streets and alleys (Special)
49416	Vacates alley (Special)

49417	Vacates portion, North Florissant Ave. (Special)
49418	Vacates alley (Special)
49419	Vacates alleys, Papin Street, portion Gratiot Street (Special)
49420	Vacates walk (Special)
49421	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49422	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49423	Amends § 45, Ch. 5, 1948 Code, bowling alleys (Title 14)
49424	Establishes Fourteenth Street (Special)
49425	Parking, Bartle Ave. (Not codified)
49426	Parking, Bartle Ave. (Not codified)
49427	Parking, Loughborough Ave. (Not codified)
49428	Parking, Labadie Ave. (Not codified)
49429	Parking, Greer Ave. (Not codified)
49430	Repeals Ord. 47090 (Repealer)
49431	Parking, Dickson Street (Not codified)
49432	Parking, Maiden Lane (Not codified)
49433	Parking, Russell Boulevard (Not codified)
49434	Parking, Natural Bridge Ave. (Not codified)
49435	Repeals Ord. 44228 (Repealer)
49436	Parking, Hereford Street (Not codified)
49437	Parking, McCausland Ave. (Not codified)
49438	Parking, Nottingham Ave. (Not codified)
49439	Parking, Laclede Ave. (Not codified)
49440	Parking, Chouteau Ave. (Repealed by 49893)
49441	Parking, Easton Ave. (Not codified)
49442	Parking, Easton Ave. (Not codified)
49443	Parking, Grand Boulevard (Not codified)
49444	Parking, Taylor Ave. (Not codified)
49445	Repeals Ord. 48702 (Repealer)
49446	Parking, Sixth Street (Repealed by 51007)
49447	Parking, Twenty-fifth Street (Not codified)
49448	Repeals §§ 1-A(112, 113, 114, 115, 116) and § 2-A(11), Ord. 49095 (Repealer)
49449	Amends § 27, Ch. 14, 1948 Code, stop points for buses traveling to and from city (8.62.280)
49450	Parking, Manchester Ave. (Not codified)
49451	Parking, Laurel Street, repeals Ord. 40587 (Not codified)
49452	Traffic-control signals, Skinker Boulevard and Wills Drive (Not codified)
49453	Repeals Ord. 48327 (Repealer)
49454	Parking, Prather Ave. (Not codified)
49455	Traffic-control signals, various intersections (Not codified)
49456	Traffic-control signals, Fyler Ave. and Hampton Ave., Jamieson Ave. and Lansdowne Ave. (Not codified)
49457	Traffic-control signals, Chippewa Street and Hereford Street (Not codified)
49458	Traffic-control signals, Broadway—Cherokee Street and Seventh Street (Not codified)
49459	Traffic-control signals, Broadway and Meramec Street (Not codified)
49460	Traffic-control signals, Grand Ave. and Meramec Street (Not codified)
49461	Parking, Locust Street, repeals § 5(6), Ord. 46525 and § 1, Ord. 46708 (Not codified)
49462	Traffic-control signals, Allemania Street and Gravois Ave., Germania Street and Morgan Ford Road (Not codified)
49463	Traffic-control signals, Delor Street and Grand Ave. (Not codified)
49464	Traffic-control signals, various intersections (Not codified)
49465	Traffic-control signals, Arsenal Street and Compton Ave. (Not codified)

49466 Traffic-control signals, Clayton Ave.—McCausland Ave. and Oakland Ave. (Not codified)

49467 Traffic-control signals, various intersections (Not codified)

49468 Traffic-control signals, Kingshighway Boulevard and Pernod Ave. (Not codified)

49469 Parking, Tower Grove Ave., repeals Ord. 45451 (Not codified)

49470 Traffic-control signals, various intersections (Not codified)

49471 Stop intersection, Thirty-ninth Street and Shenandoah Ave. (Not codified)

49472 Parking, Calhoun Street (Not codified)

49473 Designates Calhoun Street one-way street (Not codified)

49474 Parking, West Florissant Ave. (Repealed by 51076)

49475 Parking, Jefferson Ave. (Repealed by 51022)

49476 Playground stop, Lindenwood Place and Prather Ave., repeals § 3a(5), Ord. 49095 (Not codified)

49477 School stop, Sidney Street and Eleventh Street (Not codified)

49478 School stop, Walsh Street and Morgan Ford Road (Not codified)

49479 Traffic-control signals, Magnolia Ave. and Tower Grove Ave. (Not codified)

49480 Amends § 1, Ord. 48474, parking, Leffingwell Ave. (Not codified)

49481 Parking, Semple Ave. (Not codified)

49482 Fire lane, Belmont Street (Not codified)

49483 Stop intersections (Not codified)

49484 Stop intersection, Newstead Ave. and Carter Ave. (Not codified)

49485 Parking, Duncan Ave. (Not codified)

49486 Designates Quincy Street one-way street (Not codified)

49487 Traffic-control signals, Compton Ave. and Washington Ave. (Not codified)

49488 Parking, Macklind Ave. (Repealed by 49664)

49489 Parking, Alabama Ave. (Not codified)

49490 Traffic-control signals, various intersections (Not codified)

49491 School stop, Blair Ave. and Mallinckrodt Street (Not codified)

49492 Parking, Weber Road (Not codified)

49493 Speed limit, Healy Court (Repealed by 57831)

49494 Speed limit, Tesson (Repealed by 57831)

49495 Speed limit, Adkins Ave. (Repealed by 57831)

49496 Speed limit, Poepping (Repealed by 57831)

49497 Speed limit, Davis (Repealed by 57831)

49498 Amends § 10(7), Ord. 46525, parking, Pine Street (Not codified)

49499 Parking, Pine Street (Not codified)

49500 Traffic-control signals, Garrison Ave. and Natural Bridge Ave. (Not codified)

49501 Changes Maryland Ave. to Maryland Plaza (Special)

49502 Authorizes election for proposed amendments to charter (Charter Art. I)

49503 Appropriations for current expenses (Special)

49504 Establishes tax rate for 1959 (5.26.010—5.26.050)

49505 Amends § 51, Ch. 13, 1948 Code, merchant license fee (Repealed by 60735)

49506 Levies property tax for 1959 (5.26.010)

49507 Establishes collection fee for refuse and garbage (Ch. 11.02, Part II)

49508 Amends § 4, Ch. 28, 1948 Code, motor fuel tax (Repealed by 60735)

49509 Use and fee for swimming facilities (22.12)

49510 Improvement, Ray Ave. (Special)

49511 Improvement, Sulphur Ave. (Special)

49512 Improvement, Elizabeth Ave. (Special)

49513 Authorizes contracts for repair of streets and alleys in Hyde Park rehabilitation area (Special)

49514 Ratifies grant agreement for federal airport aid project No. 9-23-034-5914 (Special)

49515	Parking, Kemper Ave. (Not codified)
49516	Repeals Ord. 45585 (Repealer)
49517	Parking, Boyle Ave. (Not codified)
49518	Repeals Ord. 46644 (Repealer)
49519	Repeals Ord. 46647 (Repealer)
49520	Repeals Ord. 46645 (Repealer)
49521	Sale of property (Special)
49522	Sale of property (Special)
49523	Sale of property (Special)
49524	Parking, Forest Park (Repealed by 50813)
49525	Appropriation for law department staff engaged in condemnation (Special)
49526	Amends § 1950, Part 1, Vol. 2, 1948 Code, class B, C and D garages (Repealed by 50502)
49527	Amends §§ 3, 4, 5, 6, 8, 10, 25, Ord. 48014, bonds for parking (Special)
49528	Amends Ord. 48740, establishes Jefferson Ave. (Special)
49529	Improvement, Hancock Ave. (Special)
49530	Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)
49531	Authorizes contracts for construction of waterworks control system at Water Division Office Bldg. (Special)
49532	Declares result of election for issuance of bonds (Special)
49533	Vacates Westminster Place (Special)
49534	Designates Milentz Ave. one-way street (Not codified)
49535	Amends § 2201, Art. 20, Part 1, 1948 Code, fireworks and explosives, repeals Ord. 41389 (Repealed by 50502)
49536	Amends §§ 8, 9 and 10, Ord. 45309, use regulations in "B" two-family, and "C" four-family and "D" multiple-family dwelling districts (Title 26)
49537	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49538	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
49539	Designates blighted areas (Special)
49540	Amends §§ 2 and 6, Ord. 47063, earnings tax (5.22.020, 5.22.060)
49541	Church stop, Koeln Ave. and Vermont Ave. (Not codified)
49542	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49543	Traffic-control signals, Darby Street and Natural Bridge Ave. (Not codified)
49544	Designates area as Joseph Vigo Park (Repealed by 53597)
49545	Minimum fire ratings for schools (Repealed by 50273)
49546	Use and fee for Mark C. Steinberg Memorial Skating Rink, repeals Ord. 48454 (22.12.060)
49547	Amends § 1793, Ch. 14, Part 1, Vol. 2, 1948 Code, hazardous occupancies (Repealed by 50502)
49548	Parking, McNair Ave. (Not codified)
49549	School stop, Washington Boulevard and Pendleton Ave. (Not codified)
49550	Vacates alley (Special)
49551	Authorizes contracts for construction of viaduct on Grand Boulevard (Special)
49552	Approves urban renewal plan for Kosciusko Project (Special)
49553	Authorizes cooperation agreement with land clearance for redevelopment authority, for Kosciusko Project (Special)
49554	Repeals Ord. 49122 (Repealer)
49555	Repeals Ord. 49123 (Repealer)
49556	Church stop, Leona Street and Bowen Street (Not codified)
49557	Prohibits certain commercial vehicles, Hoffman Ave. (Not codified)
49558	Amends § 49, Ord. 46687, removal of illegally parked cars (Repealed by 56910)
49559	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49560	Amends §§ 45 and 46, Ch. 31, 1948 Code, psychiatric clinic (Ch. 12.24)

49561	Amends § 39, Ch. 31, 1948 Code, Robert Koch Tuberculosis Hospital monthly report (Repealed by 54489)
49562	Amends § 38, Ch. 56, 1948 Code, rat control (11.08.380—11.08.400, 11.08.550)
49563	Amends § 54, Ch. 56, 1948 Code, animal housing (Repealed by 62853)
49564	Amends § 33, Ch. 10, 1948 Code, vital statistics (11.62.350)
49565	Amends §§ 1, 5 and 6, Ord. 47678, transfer and commitment of females to city jail (Ch. 16.20)
49566	Amends §§ 9, 25, 26, 27, 28, 30, 31, 34, 40 and 43, Ch. 39, 1948 Code, meat and meat products (11.48.170, 11.48.240—11.48.270, 11.48.300, 11.48.310, 11.48.340, 11.48.400, 11.48.420)
49567	Amends § 59, Ch. 2, 1948 Code, board of public service officer bonds (3.26.010)
49568	Amends § 21, Ch. 52, 1948 Code, warden (16.12.010)
49569	Parole committee, repeals §§ 1—10, Ch. 52, 1948 Code (Ch. 16.04)
49570	Amends §§ 11 and 20, Ch. 52, 1948 Code, probation (Ch. 16.08.010, 16.08.100)
49571	Amends Ord. 49424, establishes highway (Special)
49572	Authorizes contracts for repaving for the court of honor, World War II Memorial (Special)
49573	Establishes land as part of Mississippi River flood control protection project (Special)
49574	Sale of property (Special)
49575	Sale of property (Special)
49576	Sale of property (Special)
49577	Appropriation for expenses of Mill Creek coordinating committee (Special)
49578	Authorizes contracts for construction of parking lot (Special)
49579	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49580	Authorizes acceptance of any gift for airport development (Ch. 18.16)
49581	Authorizes issuance of bonds (Repealed by 58194, 58328)
49582	Amends § 6, Ord. 48484, parking meter spaces (Repealed by 49997)
49583	Establishes procedures for declaration of blighted areas and redevelopment of blighted areas (Ch. 11.06)
49584	Parking, Easton Ave. (Repealed by 50254)
49585	Repeals Ord. 42554 (Repealer)
49586	Parking, Jamieson Ave. (Not codified)
49587	Prohibits certain commercial vehicles, Switzer Ave. (Not codified)
49588	Dedicates land for highway (Special)
49589	Amends § 114, Ch. 2, 1948 Code, city plan commission (Repealed by 56708)
49590	Changes Blair Ave. to Fourteenth Street and Fourteenth Street to East Fourteenth Street (Special)
49591	Parking, Hadley Street (Not codified)
49592	Parking, Washington Ave. (Not codified)
49593	Repeals Ord. 45286 (Repealer)
49594	Repeals Ord. 45537 (Repealer)
49595	Repeals Ord. 46667 (Repealer)
49596	Parking, Hereford Street (Not codified)
49597	Parking, Sulphur Ave. (Not codified)
49598	School stop, Blair Ave. and Prairie Ave. (Not codified)
49599	Repeals § 4(1), Ord. 49095 (Repealer)
49600	Prohibits certain commercial vehicles, Elizabeth Ave. (Not codified)
49601	Amends § 1, Ord. 48165, designates Salisbury Street major street (Not codified)
49602	Stop intersection, Broadway and Mallinckrodt Street (Not codified)
49603	Parking, Lexington Ave. (Not codified)
49604	Traffic-control signals, Jefferson Ave. and Washington Ave. (Not codified)
49605	Repeals Ord. 47030 (Repealer)
49606	Parking, Eighth Street (Not codified)

49607	Parking, Pershing Ave. (Not codified)
49608	Stop intersection, Geyer Ave. and Ohio Ave. (Not codified)
49609	Repeals § 3B(4), Ord. 49095 (Repealer)
49610	Repeals § 14, Ord. 47507 (Repealer)
49611	Designates Forest Park Boulevard major street (Not codified)
49612	Parking, Bruno Ave. (Not codified)
49613	Parking, Mitchell Ave. (Repealed by 49905)
49614	Designates Wise Ave. one-way street (Not codified)
49615	Parking, Maple Ave. (Not codified)
49616	Parking, DeBaliviere Ave. (Not codified)
49617	Stop intersection, Hamilton Ave. and Plymouth Ave., repeals § 2(2) line 68, Ord. 49095 (Not codified)
49618	Amends § 1, Ch. 31, 1948 Code, St. Mary's Infirmary (Repealed by 54711)
49619	Amends § 25, § 44(a), § 50, Ch. 52, 1948 Code, workhouse (16.16.020, 16.16.210, 16.16.260)
49620	Amends § 1, Ch. 61, 1948 Code, charity solicitations (Ch. 3.60)
49621	Amends §§ 3, 8, 9, 11, 12, 13, 17, Ch. 17, 1948 Code, dance halls (8.32.080, 8.32.090, 8.32.110, 8.32.120, 8.32.130, 8.32.170)
49622	Stop intersection, St. Louis Ave. and Elliot Ave. (Not codified)
49623	Firemen's retirement system, repeals Ch. 25, 1948 Code (Ch. 4.18)
49624	Designates Dwight Davis Park (22.44.110)
49625	Vacates alley (Special)
49626	Vacates alley (Special)
49627	Conditional alley vacation (Special)
49628	Conditional vacation of portion of Hampton Ave. (Special)
49629	Additional appropriation for construction of bridge (Special)
49630	Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)
49631	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
49632	Authorizes contract with land clearance for redevelopment authority for technical services (Special)
49633	Amends §§ 5, 6, 7, 8, 9, 10, 11, 12, 43, 45, 52, 53, 87, adds §§ 49A—49L, repeals § 89, Ch. 65, 1948 Code, vehicles for hire (Repealed by 58795)
49634	Amends § 41, Ord. 46687, obedience to traffic-control signals and school crossing guards (Repealed by 57831)
49635	Parking, Minnesota Ave. (Not codified)
49636	Parking, Seventh Street (Not codified)
49637	Parking, Newstead Ave. (Not codified)
49638	Parking, Macklind Ave. (Not codified)
49639	Parking, Oakland Ave. (Not codified)
49640	Yield right-of-way, Devlin Street and Sulphur Ave. (Not codified)
49641	Parking, McKinley Ave. (Not codified)
49642	Parking, Arsenal Street (Not codified)
49643	School stop, Taylor Ave. and Evans Ave. (Repealed by 50782)
49644	Parking, Koeln Ave. (Not codified)
49645	Parking, Loughborough Ave. (Not codified)
49646	Repeals Ord. 44863 (Repealer)
49647	Parking, Broadway (Not codified)
49648	Parking, Broadway, repeals § 3(1), Ord. 46525 (Not codified)
49649	Parking, Eleventh Street (Not codified)
49650	Parking, Charles Street (Not codified)
49651	Parking, Memorial Drive (Not codified)
49652	Traffic-control signals, Compton Ave. and Laclede Ave. (Not codified)
49653	Parking, Sixth Street (Not codified)
49654	Parking, Park Ave. (Not codified)
49655	Parking, Newstead Ave. (Not codified)
49656	School stop, Blair Ave. and East Prairie Ave. (Not codified)
49657	Parking, Humboldt Street (Not codified)

49658 Traffic-control signals, Broadway and Harlan Ave. (Not codified)

49659 Parking, Easton Ave. (Repealed by 50153)

49660 Parking, North Market Street (Not codified)

49661 Parking, Bancroft Ave. (Not codified)

49662 Parking, Sulphur Ave. (Not codified)

49663 Parking, Watson Road (Not codified)

49664 Repeals Ord. 49488 (Repealer)

49665 Designates Hereford Ave. one-way street (Not codified)

49666 Parking, Hampton Ave. (Not codified)

49667 Stop intersection, Clarence Ave. and Rosalie Street (Not codified)

49668 Designates Parker Ave. one-way street (Not codified)

49669 Designates Fairview Ave. one-way street (Not codified)

49670 Designates Mardel Ave. one-way street (Not codified)

49671 Designates Harris Ave. one-way street (Not codified)

49672 Prohibits commercial vehicles, alleys, blocks 5868 and 5870 (Repealed by 57831)

49673 Designates Wanda Ave. one-way street (Not codified)

49674 Parking, Bingham Ave. (Repealed by 51457)

49675 Traffic-control signals, Delmar Boulevard—Grand Ave. and Enright Ave. (Not codified)

49676 Parking, Missouri Ave. (Not codified)

49677 Parking, Eighth Street (Not codified)

49678 Parking, O'Fallon Street (Not codified)

49679 Parking, Nineteenth Street (Not codified)

49680 Stop intersection, Brannon Ave. and Pernod Ave., repeals § 1, line 24, Ord. 49095 (Not codified)

49681 Parking, Sarah Street (Not codified)

49682 Parking, West Florissant Ave. (Not codified)

49683 Parking, Indiana Ave. (Not codified)

49684 Parking, Ohio Ave. (Not codified)

49685 Stop intersection, Utah Street and Nebraska Ave. (Not codified)

49686 Parking, Arsenal Street (Not codified)

49687 Designates San Francisco Ave. one-way street (Not codified)

49688 Directs transfer of money (Special)

49689 Amends Ord. 49522, sale of property, blocks 1 and 41 (Special)

49690 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

49691 Sale of property (Special)

49692 Sale of property (Special)

49693 Appropriation for acquisition of property for children's custodial institutions (Special)

49694 Repeals Ord. 48836 (Repealer)

49695 Appropriation for acquisition of property for street improvements (Special)

49696 Designates area as Charlotte Rumbold Park (22.44.120)

49697 Designates area as Robert Terry Park (22.44.130)

49698 Parking, between City Hall and Twelfth Street (Repealed by 52109)

49699 Grade, Sulphur Ave. (Special)

49700 Parking, Riverview Boulevard (Not codified)

49701 Parking, Baden Ave. (Not codified)

49702 Designates Cote Brilliante Ave. one-way street (Not codified)

49703 Prohibits commercial vehicles, Maple Ave. (Not codified)

49704 Parking, Vera Ave. (Not codified)

49705 Establishes Rock Island Highway (Special)

49706 Vacates alley, block 1478-S (Special)

49707 Stop intersection, Meramec Street and Louisiana (Not codified)

49708 School stop, Meramec Street and Giles Ave. (Not codified)

49709	Authorizes contracts for improvement, park area (Special)
49710	Additional appropriation for acquisition of land (Special)
49711	Authorizes contracts for improvement, park area (Special)
49712	Sale of property (Special)
49713	Sale of property (Special)
49714	Sale of property (Special)
49715	Sale of property, repeals Ord. 46814 (Special)
49716	Sale of property (Special)
49717	Sale of property (Special)
49718	Appropriation for repair to vehicle approach to Douglas MacArthur Bridge (Special)
49719	Prohibits commercial vehicles, Dewey Ave. (Not codified)
49720	Prohibits commercial vehicles, Thirtyseventh Street (Not codified)
49721	Repeals Ord. 48642 (Repealer)
49722	Repeals Ord. 48643 (Repealer)
49723	Repeals Ord. 45704 (Repealer)
49724	Repeals § 1845, Art. 11, Ch. 69 (Repealer)
49725	Designates Harney Ave. one-way street, repeals Ord. 48835 (Not codified)
49726	Amends § 29, Ord. 46957, dogs (Ch. 10.04)
49727	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49728	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49729	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49730	Establishes land as part of Mississippi River flood control protection project (Special)
49731	Repeals Ord. 44969 (Repealer)
49732	Additional appropriation for police department (Special)
49733	Sale of property (Special)
49734	Sale of property (Special)
49735	Sale of property (Special)
49736	Sale of property (Special)
49737	Sale of property (Special)
49738	Amends § 27, Ch. 14, 1948 Code, points buses transporting to and from city may receive and discharge passengers (8.62.280)
49739	Parking, Hodiamont Ave. (Not codified)
49740	Stop intersection, Hereford Street and Pernod Ave. (Not codified)
49741	Designates Rhodes Ave. one-way street (Not codified)
49742	Designates Lawn Ave. one-way street (Not codiiried)
49743	Prohibits commercial vehicles, Maryland Ave. (Not codified)
49744	Repeals Ord. 46343 (Repealer)
49745	Parking, Spring Ave. (Not codified)
49746	Prohibits commercial vehicles, Grace Ave. (Not codified)
49747	Parking, Potomac Street (Not codified)
49748	Repeals § 1765, Art. 11, Ch. 69, 1948 Code (Repealer)
49749	Stop intersection, Clark Ave. and Spring Ave. (Not codified)
49750	Traffic-control signals, Forest Park Boulevard and Spring Ave. (Not codified)
49751	Parking, Euclid Ave. (Not codified)
49752	Parking, Seventeenth Street, repeals § 3, Ord. 45298 (Not codified)
49753	Designates Branch Street one-way street (Repealed by 50881)
49754	Stop intersection, Branch Street and Twenty-third Street (Not codified)
49755	Designates Howell Street one-way street (Not codified)
49756	Parking, Arsenal Street (Not codified)
49757	Additional appropriation for school crossing guard program (Special)

49758	Amends §§ 79, 80, 81, 82, 83, 84, 85, 87 and 88, Ch. 2, 1948 Code, department of public welfare (3.16.010, 3.16.030, 3.16.040, 3.36.010, 3.36.050, 3.36.300, 3.38.010, 3.38.020, 3.38.040, 3.38.050, 22.04.010—22.04.040)
49759	Authorizes contracts for surveys and plans for remodeling laundries at City Hospital No. 1 and Koch Hospital (Special)
49760	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49761	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49762	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49763	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
49764	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49765	Parking, Rauschenbach Ave., repeals Ord. 41745 (Repealed by 51589)
49766	Authorizes acceptance of funds for establishment of Malcolm Bliss Treatment Center for Alcoholics (Special)
49767	Authorizes acceptance of funds for construction of Chronic Alcoholic Division in Malcolm Bliss Mental Health Center (Special)
49768	Amends § 1, Ord. 49309, directs issuance of bonds (Special)
49769	Authorizes contracts for construction of fire proof vault for microfilm storage at City Hall (Special)
49770	Amends § 4(2)(4)(5), Ord. 46687, temporary regulations on major streets (Repealed by 57831)
49771	Amends §§ 1—27, 52—57, repeals §§ 28—51, 58—61, Ch. 48, 1948 Code, parks, playgrounds and recreation facilities (22.04.050—22.04.140, Ch. 22.08, 22.12.010—22.12.040, 22.16.010, 22.16.020, 22.16.030, 22.16.040, 22.16.050, 22.16.070, 22.16.080, 22.16.090, 22.16.100, 22.16.120, 22.16.130, 22.20.010—22.20.050, 22.24.010, 22.24.020, 22.24.050, 22.24.060, 22.24.080—22.24.100)
49772	Adds §§ 28—47, Ch. 48, 1948 Code, repeals §§ 1—24, Ch. 71, 1948 Code, division of forestry (Ch. 22.48)
49773	Adds §§ 48—51, Ch. 48, 1948 Code, repeals Art. 5, Ch. 27, 1948 Code, weeds (Ch. 11.04)
49774	Amends Part 3, 1948 Code, changes zoning to "B" two-family dwelling district (Special)
49775	Appropriation for construction at Lambert-St. Louis Municipal Airport (Special)
49776	Creates municipal business development commission (Repealed by 56708)
49777	Establishes planetarium commission (Ch. 3.74)
49778	Alley improvement (Special)
49779	Alley improvement (Special)
49780	Alley improvement (Special)
49781	Amends § 26, Ord. 46687, pedestrians (Repealed by 57831)
49782	Prohibits commercial vehicles, Bartmer Ave. (Not codified)
49783	Stop intersection, Whittier Street and Fairfax Ave. (Not codified)
49784	Stop intersection, Pendleton Ave. and Fairfax Ave. (Not codified)
49785	Prohibits commercial vehicles, Ray Ave. (Not codified)
49786	Designates Marceline Terrace one-way street (Not codified)
49787	Designates Dewey Ave. one-way street (Not codified)
49788	Designates Neosho Street one-way street (Not codified)

49789	Designates Taft Ave. one-way street (Repealed by 50198)
49790	Designates Osceola Street one-way street (Repealed by 50198)
49791	Parking, Bingham Ave. (Not codified)
49792	Parking, Sulphur Ave. (Not codified)
49793	Prohibits commercial vehicles, Etzel Ave. (Not codified)
49794	Prohibits commercial vehicles, Enright Ave. (Not codified)
49795	Prohibits commercial vehicles, Cabanne Ave. (Not codified)
49796	Designates Jamieson Ave. major street, repeals Ord. 45103 (Not codified)
49797	Traffic-control signals, Calvary Ave. and West Florissant Ave. (Not codified)
49798	Repeals Ord. 47376 (Repealer)
49799	Amends § 975, Ch. 69, 1948 Code, designates McCausland Ave. major street (Not codified)
49800	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49801	Establishes route of Ozark Expressway (Special)
49802	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49803	Designates Pennsylvania Ave. one-way street (Not codified)
49804	Appropriation for construction of spur track (Special)
49805	Left turn signals, Thirteenth Street and Cass Ave. (Not codified)
49806	Sale of property (Special)
49807	Sale of property (Special)
49808	Authorizes contracts for park improvement plans (Special)
49809	Vacates certain streets and alleys (Repealed by 52531)
49810	Vacates portion alley (Special)
49811	Vacates alley (Special)
49812	Vacates Bancroft Ave. (Special)
49813	Vacates portion Jamieson Ave., transfer of title (Special)
49814	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49815	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49816	Sale of property (Special)
49817	Sale of property (Special)
49818	Sale of property (Special)
49819	Sale of property (Special)
49820	Sale of property (Special)
49821	Submits proposed charter amendments to voters (Charter Art. VII, Art. VIII)
49822	Describes blighted area (Special)
49823	Additional appropriation for grade separation obligations (Special)
49824	Authorizes contracts for forestry work in Hyde Park and Cherokee neighborhoods (Special)
49825	Compensation of president and board of aldermen, repeals Ord. 45564 (3.06.090)
49826	Authorizes acquisition of site for park (Special)
49827	Designates W. C. Handy Park (22.44.140)
49828	Directs issuance of bonds (Special)
49829	Authorizes contracts for remodeling laundry building at City Hospital No. 1 and Koch Hospital (Special)
49830	Authorizes contracts for construction and improvements in various parks (Special)
49831	Appropriation for acquisition of property for parks (Special)
49832	Appropriation for establishing Spring Ave. (Special)
49833	Additional appropriation for separation of grades (Special)
49834	Authorizes contracts for resurfacing various streets (Special)
49835	Authorizes contracts for improvement of various streets (Special)
49836	Appropriation for acquisition of rights of way for expressways (Special)

49837	Appropriation for sites for fire stations (Special)
49838	Additional appropriation for rehabilitation of Kiel Auditorium (Special)
49839	Appropriation for reimbursement of zoological board of control (Special)
49840	Authorizes contracts for street lighting (Special)
49841	Authorizes contracts for construction of a planetarium in Forest Park (Special)
49842	Authorizes contract for survey and plan for remodeling Koch Hospital dormitory (Special)
49843	Additional appropriation for construction of municipal dock (Special)
49844	Authorizes contracts for construction of bridge (Special)
49845	Additional appropriation for children's center (Special)
49846	Authorizes contracts for construction of child guidance clinic (Special)
49847	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49848	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49849	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49850	Authorizes prosecution on complaint without filing any information (3.08.130)
49851	Authorizes uniform rules of practice and procedure for city courts (3.08.100—3.08.120)
49852	Repeals §§ 7, 8, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 28, 30, 31, 32, 35, 36, 37, 41, 42, 43, 44, 47, 48, 49, 50, 51, 54 and 56, Ch. 15, 1948 Code (Repealer)
49853	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49854	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49855	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49856	Amends Part 3, 1948 Code changes zoning to "A" single-family dwelling district (Special)
49857	Additonal appropriation (Special)
49458	Acquisition of property for addition to Vashon Playfield, vacates alley, block 2245 (Special)
49859	Accepts land for park (Special)
49860	Classified service and compensation plan (Ch. 4.10)
49861	Vacates portion of Russell Ave. (Special)
49862	Vacates alley (Special)
49863	Authorizes contracts for installation of elevator in incinerator (Special)
49864	Amends § 18A(8), Ord. 45309, use, height and area exceptions (26.76.020)
49865	Amends § 114, Ch. 2, 1948 Code, city plan commission (Repealed by 56708)
49866	Authorizes contracts for installation of street lighting (Special)
49867	Parking, Semple Ave. (Not codified)
49868	Designates Shier Place one-way street (Not codified)
49869	School stop, Semple Ave. and Cote Brilliante Ave. (Not codified)
49870	Repeals Ord. 44566 (Repealer)
49871	Repeals § 1703, Art. 11, Ch. 69, 1948 Code (Repealer)
49872	Repeals Ords. 39011, 42267 and 45888 (Repealer)
49873	Parking, Meramec Street (Not codified)
49874	Stop intersection, Hickory Street and Tenth Street (Not codified)
49875	Parking, Laclede Ave., repeals Ord. 46830 (Not codified)
49876	Parking, Palm Street (Not codified)
49877	Stop intersection, Holt Ave. and Beck Ave. (Not codified)

49878	Parking, Belt Ave. (Not codified)
49879	Parking, Delmar Boulevard (Repealed by 51561)
49880	Parking, North Market Street (Not codified)
49881	Parking, Bremen Ave. (Not codified)
49882	Parking, Spring Ave. (Not codified)
49883	Parking, Chouteau Ave. (Not codified)
49884	Stop intersection, Gratiot Street and Spring Ave. (Not codified)
49885	Parking, Hampton Ave. (Not codified)
49886	Stop intersection, Geyer Ave. and Oregon Ave. (Not codified)
49887	Repeals Ord. 47598 (Repealer)
49888	Parking, Spring Ave. (Not codified)
49889	Prohibits commercial vehicles, Nashville Ave. (Not codified)
49890	Designates Hamburg Ave. one-way street (Not codified)
49891	Stop intersection, Itaska Street and Virginia Ave. (Not codified)
49892	Parking, Douglas Street (Not codified)
49893	Parking, Chouteau Ave., repeals Ord. 49440 (Not codified)
49894	Designates Maury Ave. one-way street (Not codified)
49895	Designates Portis Ave. one-way street (Not codified)
49896	Designates Cleveland Ave. one-way street (Not codified)
49897	Designates Castleman Ave. one-way street (Not codified)
49898	Designates Flad Ave. one-way street (Not codified)
49899	Designates Flora Ave. one-way street (Not codified)
49900	Designates Russell Ave. one-way street (Not codified)
49901	Parking, Walnut Street, repeals Ord. 41849 (Not codified)
49902	Adds § 13(16), Ord. 46687, conduct of streetcar drivers at intersections (Repealed by 57831)
49903	Stop intersection, Locust Boulevard and Ewing Ave. (Not codified)
49904	Designates Laurel Street one-way street, repeals Ord. 46955 (Not codified)
49905	Parking, Mitchell Ave., repeals Ord. 49613 (Not codified)
49906	Parking, Thirty-ninth Street (Not codified)
49907	Repeals Ords. 46646 and 46686, parking, Boyle Ave. (Not codified)
49908	Parking, East Prairie Ave. (Not codified)
49909	Amends § 6, Ord. 46230, parking, Cole Street (Not codified)
49910	Parking, Eichelberger Street (Not codified)
49911	Parking, Rutger Street (Not codified)
49912	Stop intersection, Idaho Ave. and Delor Street (Not codified)
49913	Designates Wilmington Ave. major street (Not codified)
49914	Parking, Lafayette Ave. (Not codified)
49915	Amends §§ 1(32) and 2(45) Ord. 46525, parking, Newstead Ave. (Not codified)
49916	Amends § 1, Ord. 49673, designates Wanda Ave. one-way street (Not codified)
49917	Parking, Wanda Ave. (Not codified)
49918	Parking, Hurck Street (Not codified)
49919	Stop intersection, Iowa Ave. and Pestalozzi Street (Not codified)
49920	Amends § 64, Ch. 48, 1948 Code, zoological board of control (22.28.030)
49921	Vacates alley (Special)
49922	Conditional alley vacation (Special)
49923	Vacates Oriole Ave., Gilmore Ave., alleys, blocks 5392 and 5353 (Repealed by 50966)
49924	Alley improvement (Repealed by 50035)
49925	Sale of property (Special)
49926	Sale of property (Special)

49927	Amends § 14, Ch. 15, 1948 Code, municipal court clerk duties (3.08.180, 3.08.185)
49928	Amends § 5, Ord. 47063, earnings tax (5.22.050)
49929	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49930	Amends Part 3, 1948 Code, changes zoning to "A" single-family dwelling district (Special)
49931	Appropriation for damages (Special)
49932	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
49933	Establishes city employee retirement system (Repealed by 64833)
49934	Authorizes contracts for installation of street lighting (Special)
49935	Authorizes contracts for improvement, Memorial Plaza (Special)
49936	Minimum standards for buildings housing children, aged or incapacitated persons (Repealed by 60664)
49937	Authorizes acceptance of funds for construction of planetarium (Special)
49938	Designates Lindenwood Park (22.44.150)
49939	Acquisition of property, for Lambert-St. Louis Municipal Airport (18.04.030F)
49940	Appropriation for acquiring land for Lambert-St. Louis Municipal Airport (Special)
49941	Authorizes agreement with St. Louis Metropolitan Chamber of Commerce Industrial Park Corporation for railroad right of way (Special)
49942	Amends § 43, Ch. 5, 1948 Code, license for on premises sale and consumption of alcoholic beverages by the drink (14.28.020, 14.28.040)
49943	Amends §§ 1 and 45, Ch. 5, 1948 Code, premises requirements where intoxicating liquor sold by the drink (Title 14)
49944	Conditional vacation, utility easement (Special)
49945	Sale of property (Special)
49946	Sale of property (Special)
49947	Coroner and morgue employee appointment and salaries, repeals Ord. 48293 (Repealed by 50951)
49948	Relief for Bliss W. Waters (Special)
49949	Recorder of deeds employee appointment and salaries, repeals Ord. 47293 (Ch. 4.34)
49950	Amends § 98, Ch. 23, 1948 Code, city treasurer employee appointment and salaries (4.26.010, 4.26.020)
49951	Compensation plan for parking meter division personnel (4.30.010)
49952	Establishes Spring Ave. (Special)
49953	Authorizes contract with state highway commission for street lighting system (Special)
49954	Authorizes contract with state highway commission for street lighting systems (Special)
49955	Parking, Tholozan Ave. (Not codified)
49956	Parking, East Prairie Ave. (Not codified)
49957	Stop intersection, Ellendale Ave. and Wellington Ave. (Not codified)
49958	Fire lane, Cleveland Place (Not codified)
49959	Designates Germania Street and Lansdowne Ave. major streets (Not codified)
49960	Parking, Marceline Terrace (Not codified)
49961	Prohibits commercial vehicles, Osceola Street (Not codified)
49962	Prohibits commercial vehicles, Bingham Ave. (Not codified)
49963	Prohibits commercial vehicles, Beethoven Ave. (Not codified)
49964	Prohibits commercial vehicles, Eichelberger Street (Not codified)
49965	Parking, Eichelberger Street (Not codified)
49966	Prohibits commercial vehicles, Dewey Ave. (Not codified)

49967	Prohibits commercial vehicles, Fillmore Street (Not codified)
49968	Prohibits commercial vehicles, Bowen Street (Not codified)
49969	Parking, Grand Boulevard (Not codified)
49970	Parking, Ivanhoe Ave. (Not codified)
49971	Parking, Fyler Ave. (Not codified)
49972	Parking, Jamieson Ave. (Not codified)
49973	Parking, Academy Ave. (Not codified)
49974	Parking, California Ave. (Not codified)
49975	Parking, Newby Street (Not codified)
49976	Prohibits commercial vehicles, Maple Ave. (Not codified)
49977	Parking, Walsh Street (Not codified)
49978	Parking, Virginia Ave. (Not codified)
49979	Designates Elias Ave. one-way street (Not codified)
49980	Designates Harlan Ave. one-way street (Not codified)
49981	Prohibits commercial vehicles, Plainview Ave. (Not codified)
49982	Prohibits commercial vehicles, Ivanhoe Ave. (Not codified)
49983	Prohibits commercial vehicles, Prather Ave. (Not codified)
49984	Prohibits commercial vehicles, Lansdowne Ave., repeals Ord. 46786 (Not codified)
49985	Parking, Wither Street (Not codified)
49986	Amends § 2, Ord. 47636, parking, Water-man Boulevard (Not codified)
49987	Parking, Watson Road, repeals Ord. 47702 (Not codified)
49988	Fire lane, Clifton Ave. (Not codified)
49989	Parking, DeTonty Street (Not codified)
49990	Parking, Gay Street, repeals §§ 2 and 3, Ord. 41941 (Not codified)
49991	Repeals Ord. 46072 (Repealer)
49992	Amends § 8, Ch. 37, 1948 Code, board of merchants and manufacturers tax equalization (8.04.010)
49993	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
49994	Amends Ord. 49424, establishes Fourteenth Street (Special)
49995	Amends Ord. 49424, establishes Fourteenth Street (Special)
49996	Submits proposed amendment to charter to voters (Failed)
49997	Parking meters and parking meter commission, repeals Ords. 48484, 48897 and 48898 (17.62)
49998	Appropriation for current expenses (Special)
49999	Establishes tax rate for 1960 (5.26.010— 5.26.050)
50000	Authorizes exchange of land with Ralston Purina Co. (Special)
50001	Prohibits commercial vehicles, Sublette Ave. (Not codified)
50002	Prohibits commercial vehicles, Bischoff Ave. (Not codified)
50003	Prohibits commercial vehicles, Wilson Ave. (Not codified)
50004	Authorizes contracts for construction of water main (Special)
50005	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
50006	Vacates alley (Special)
50007	Vacates Mullanphy Street (Special)
50008	Designates David Hickey Park (22.44.160)
50009	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
50010	Establishes land as part of Mississippi River flood control protection project (Special)
50011	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
50012	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50013 Appropriation for construction at Lambert- St. Louis Municipal Airport (Special)

50014 Establishes park site (Special)

50015 Establishes addition to Lambert-St. Louis Municipal Airport (Special)

50016 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

50017 Addition to Lambert-St. Louis Municipal Airport (18.04.030D)

50018 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

50019 Authorizes easement for sewer across portions of Lambert-St. Louis Municipal Airport (Special)

50020 Changes name of Red Feather Express Highway to David P. Wohl Express Highway (Special)

50021 Private property owner granted easement and right of occupancy of portion of public street (Special)

50022 Magistrate court employee compensation and classification schedule (4.24.010)

50023 Sale of property (Special)

50024 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50025 Authorizes contracts for construction of service yard at Chain of Rocks plant (Special)

50026 Authorizes exchange of lands (Special)

50027 Vacates Walsh Street (Special)

50028 Vacates Water Street and alley, block 3250 (Repealed by 50694)

50029 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

50030 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

50031 Authorizes quitclaim of property (Special)

50032 Additional appropriation (Special)

50033 Approves development plan of Mansion House Center Redevelopment Corporation (Special)

50034 Authorizes acquisition of property for park (Special)

50035 Repeals Ord. 49924 (Repealer)

50036 Grades, Bancroft Ave. (Special)

50037 Additional appropriation (Special)

50038 Amends § 1(2), Ch. 44, 1948 Code, excessive noise (15.50.030)

50039 Prohibits commercial vehicles, Clements Ave. (Not codified)

50040 Prohibits commercial vehicles, Enright Ave. (Not codified)

50041 Parking, Hurck Street (Not codified)

50042 Traffic-control signals, Market Street and Seventeenth Street (Not codified)

50043 Parking, Third Street service ramp (Not codified)

50044 Traffic-control signals, Ninth Street and Washington Ave. (Not codified)

50045 Traffic-control signals, Tenth Street and Washington Ave. (Not codified)

50046 Traffic-control signals, Eleventh Street and Washington Ave. (Not codified)

50047 Traffic-control signals, Fifteenth Street and Market Street (Not codified)

50048 Amends § 2(4), Ord. 49781, pedestrians (Repealed by 50955)

50049 Traffic-control signals, Arsenal Street and McCausland Ave. (Not codified)

50050 Parking, Tholozan Ave. (Repealed by 50716)

50051 Designates alley, block 1605 one-way (Not codified)

50052 Amends §§ 19 and 21, Ch. 2, 1948 Code, board of aldermen employee salaries, repeals Ords. 45486, 45559 and 56336 (Repealed by 50574, 52743, 53377)

50053 Vacates alley (Special)

50054 Vacates Leonard Ave. and alley, block 2226 (Repealed by 52531)

50055 Vacates alley (Special)

50056 Vacates certain streets and alleys (Special)

50057 Vacates portion of alley (Special)

50058 Vacates portion of alley (Repealed by 51965)

50059 Vacates alley (Special)

50060 Vacates alley (Special)

50061 Requires sidewalks before certificates of occupancy issued (20.26.140)

50062 Requires sign at building construction and demolition sites (25.08)

50063 Adds § 19E, Ord. 45309, appeals to board of adjustment (Title 26)

50064 Authorizes contracts for remodeling employees dormitory at Koch Hospital (Special)

50065 Amends § 13A, Ord. 45309, use, height and area exceptions (26.76.020)

50066 Amends § 1, Ord. 49545, minimum standards for schools (Repealed by 50273)

50067 Traffic-control signals, Manchester Ave. and McCausland Ave. (Not codified)

50068 Traffic-control signals, McCausland Ave. and Southwest Ave. (Not codified)

50069 Traffic-control signals, McCausland Ave. and Mitchell Ave. (Not codified)

50070 Traffic-control signals, Dale Ave. and McCausland Ave. (Not codified)

50071 Amends § 73, Ch. 67, 1948 Code, admissions tax at sport events (8.100.470)

50072 Designates Smiley Ave. one-way street (Not codified)

50073 Authorizes contract with state highway commission for establishing state highway (Special)

50074 Fire lane, Sublette Ave. (Not codified)

50075 Repeals Ord. 48005 (Repealer)

50076 Repeals ord. 48006 (Repealer)

50077 Amends Ch. 72, 1948 Code, weights and measures (Title 9)

50078 Ratifids amendment to grant agreement for project No. 9-23-034-5914 (Special)

50079 Authorizes contract for fumishing and maintaining lighting systems (Special)

50080 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

50081 Authorizes contract for replacing sidewalks (Special)

50082 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50084 Vacates alley (Special)

50085 Vacates alley (Special)

50086 Vacates alley (Special)

50087 Vacates Collins Street, alley, block 69 (Special)

50088 Improvement, Bancroft Ave. (Special)

50089 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50090 Amends § 114, Ch. 2, 1948 Code, city plan commission (Repealed by 56708)

50091 Amends § 19(A), Ord. 45309, zoning board of adjustment (Title 26)

50092 Vacates alley (Special)

50093 Conditional vacation, Park Ave. and Kosciusko Street, alley, block 200 (Special)

50094 Authorizes acceptance of funds for sport trophies for children (Special)

50095 Conditional alley vacation (Special)

50096 Authorizes cooperative agreement with federal government for parking facility at Jefferson National Expansion Memorial Site (Special)

50097 Grade level paving and filling of any hole in sidewalk caused by abandonment of structures in sidewalk (20.26.150)

50098 Vacates John Ave. and Maria Street (Special)

50099 Sale of property (Special)

50100 Amends § 1, Ord. 49274, parking, Penrose Ave. (Not codified)

50101 Parking, Bircher Boulevard (Not codified)

50102 Parking, Arthur Ave. (Not codified)

50103 Repeals Ord. 46452 (Repealer)

50104 Repeals Ord. 48644 (Repealer)

50105 Stop intersection, Beacon Ave. and Theodore Ave. (Not codified)

50106 Parking, Grand Ave. (Not codified)

50107 Parking, Gravois Ave., repeals Ord. 45245 (Not codified)

50108 Parking, Gravois Ave. (Not codified)

50109 Parking, Neosho Street (Not codified)

50110 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

50111 Regulations for declaration of candidacy (2.08.380—2.08.410)

50112 Authorizes lease of wharf to United States Steel Corp. (Special)

50113 Describes blighted area (Special)

50114 Authorizes additional personnel for building commissioner (Special)

50115 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50116 Authorizes cooperative agreement with federal government for easement and facilities (Special)

50117 Amends § 717, Part 1, Vol. 2, 1948 Code, vertical separation of windows and doors (Repealed by 56797)

50118 Alley improvements (Special)

50119 Amends Ord. 49828, issuance of bonds (Special)

50120 Appropriation for acquisition of land (Special)

50121 Fixes prisoner board fee for 1961 (16.12.030)

50122 Sale of property (Special)

50123 Amends §§ 23, 30, 45, 53, 54, 58, repeals §§ 32, 34, 46, 47, Ch. 52, 1948 Code, workhouse (16.16.080, 16.16.100, 16.16.220, 16.16.230)

50124 Sale of property (Special)

50125 Sale of property (Special)

50126 Sale of property (Special)

50127 Sale of property (Special)

50128 Sale of property (Special)

50129 Appropriation for survey for development of Shaw Neighborhood, Compton Eads, West End, Fountain Park and Fairgrounds Neighborhood areas (Special)

50130 Authorizes contracts for billing and collection system at Homer G. Phillips Hospital (Special)

50131 Financial responsibility for city employees and vehicles in accidents (Ch. 4.12)

50132 Authorizes contracts for construction of sewers in Forest Park (Special)

50133 Appropriation for federal government part in developing Jefferson National Expansion Memorial (Special)

50134 Relief for Lorene Realty and Investment Corp. (Special)

50135 Improvement, Clarence Ave. (Special)

50136 Repeals Ord. 44387 (Repealer)

50137 Establishes land as part of Mississippi River flood control protection project (Special)

50138 Vacates alley (Special)

50139 Vacates LaBeaume Street and Commercial Street (Special)

50140 Fish and Irish products (Ch. 11.50)

50141 Prohibits commercial vehicles, Wells Ave. (Not codified)

50142 Prohibits commercial vehicles, Cates Ave. (Not codified)

50143 Prohibits commercial vehicles, Minerva Ave. (Not codified)

50144 Prohibits commercial vehicles, Mardel Ave. (Not codified)

50145 Prohibits commercial vehicles, Theodosia Ave. (Not codified)

50146 Prohibits commercial vehicles, Scanian Ave. (Not codified)

50147 Repeals Ords. 49177, 4917.8 and 49180 (Repealer)

50148 Parking, Creighton Drive (Not codified)

50149 Repeals Ord. 49179 (Repealer)

50150 Repeals Ord. 49178 (Repealer)

50151 Repeals Ord. 49180 (Repealer)

50152 Parking, Hampton Ave. (Not codified)

50153 Parking, Easton Ave., repeals Ord. 49659 (Not codified)

50154 Parking, Gratiot Street (Not codified)

50155 Parking, Laclede Ave. (Not codified)

50156 Stop intersection, Manhattan Ave. and Picadilly Ave. (Not codiified)

50157 Parking, Union Boulevard (Repealed by 50555)

50158 Designates Potomac Street one-way street (Not codified)

50159 Parking, Hampton Ave. (Not codified)

50160 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50161 Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)

50162 Stop intersection, Easton Ave. and Webster Ave. (Not codified)

50163 Air pollution control, repeals §§ 1—37, Ch. 59, 1948 Code (Ch. 11.34)

50164 Sale of certain property (Special)

50165 Submits proposed amendment to charter to voters (Charter Art. XX)

50166 Authorizes payment to federal government for developing Jefferson National Expansion Memorial (Special)

50167 Sale of property (Special)

50168 Amends §§ 41 and 42, Ch. 6, 1948 Code, birds (10.12.040, 10.12.050)

50169 Prohibits commercial vehicles, Wabade Ave. (Not codified)

50170 Authorizes board of commissioners of the Bryan Mullanphy Immigrant and Travelers' Relief Fund to sell easements to city (Special)

50171 Sale of property (Special)

50172 Relief for Theora Jones (Special)

50173 Sheriff office employee salaries, repeals Ord. 48340 (Ch. 4.36)

50174 Authorizes cooperation agreement with St. Louis County for joint airport (Special)

50175 Prohibits commercial vehicles, Wallace Street (Not codified)

50176 Prohibits commercial vehicles, Bingham Ave. (Not codified)

50177 Repeals Ord. 47407 (Repealer)

50178 Parking, Clayton Road (Not codified)

50179 Prohibits commercial vehicles, Waterman Boulevard (Not codified)

50180 Designates Leahy Ave. one-way street (Not codified)

50181 Designates Lilburn Ave. one-way street (Not codified)

50182 Designates Harney Ave. one-way street (Not codified)

50183 Designates Ashby Ave. one-way street (Not codified)

50184 Designates Rosalie Street one-way street (Not codified)

50185 Designates Theodore Ave. one-way street (Not codified)

50186 Designates Thekla Ave. one-way street (Not codified)

50187 Parking, Orchid Ave. (Not codified)

50188 Parking, Des Peres Ave. (Not codified)

50189 Parking, Hodiamont Ave. (Not codified)

50190 Designates Ellendale Ave. major street (Not codified)

50191 Stop intersection, Gano Ave. and Twentieth Street (Not codified)

50192 Parking, Mallinckrodt Street (Not codified)

50193 Repeals Ord. 45036 (Repealer)

50194 Traffic-control signals, McLaran Ave. and Riverview Boulevard (Not codified)

50195 Parking, Orchid Ave. (Not codified)

50196 Parking, Geraldine Ave. (Not codified)

50197 Parking, Euclid Ave. (Not codified)

50198 Repeals Ord. 49790 and 49789 (Repealer)

50199	Stop intersection, Picadilly Ave. and Manhattan Ave. (Not codified)
50200	Parking, Wanda Ave. (Not codified)
50201	Parking, Union Boulevard (Not codified)
50202	Church stop, Emerson Ave. and Lilian Ave. (Not codified)
50203	Traffic-control signals, Goodfellow Boulevard and Lilian Ave. (Not codified)
50204	Traffic-control signals, Union Boulevard and Lilian Ave. (Not codified)
50205	Designates Floy Ave. one-way street (Not codified)
50206	Designates Morin Ave. one-way street (Not codified)
50207	School stop, Ninth Street and Salisbury Street (Not codified)
50208	Parking, Penrose Street (Not codified)
50209	Parking, Westminster Place (Not codified)
50210	Parking, Clayton Ave. (Not codified)
50211	Parking, Skinker Boulevard (Not codified)
50212	Parking, Skinker Boulevard (Not codified)
50213	Designates Ferris Ave. one-way street (Not codified)
50214	Designates McArthur Ave. one-way street (Not codified)
50215	Prohibits commercial vehicles, Wabash Ave. (Not codified)
50216	Parking, Gimblin Road (Not codified)
50217	Prohibits commercial vehicles, Chamberlain Ave. (Not codified)
50218	Establishes area for parking facilities (Special)
50219	Appropriation for acquisition of land for parking facility (Special)
50220	Amends Ord. 50014, establishes park and playground (Special)
50221	Establishes site for park (Special)
50222	Fire lane, Sublette Ave. (Not codified)
50223	Fire lane, Prescott Ave. (Not codified)
50224	Appropriation for development of Lambert-St. Louis Municipal Airport (Special)
50225	Appropriation for acquisition of land (Special)
50226	Authorizes contracts for forestry work at various areas (Special)
50227	Authorizes acceptance of funds for establishment of Malcolm Bliss Research Laboratory (Special)
50228	Authorizes acceptance of funds for establishment of Malcolm Bliss Research Laboratory (Special)
50229	Special encroachment permit for parking driveway ramps into streets and alleys (20.28.110—20.28.140)
50230	Provides all leases with city contain provision that lessee shall not discriminate (15.20.010)
50231	Creates revolving fund for repair of sidewalks (20.26.110—20.26.130)
50232	Sale of property (Special)
50233	Parking, Dock Street (Not codified)
50234	Repeals Ord. 45438 (Repealer)
50235	Appropriation for development of Lambert-St. Louis Municipal Airport (Special)
50236	Vacates alleys and various streets (Special).
50237	Stop intersection, Natural Bridge Ave. and Belt Ave. (Not codified)
50238	Amends Part 3, 1948 Code, changes zoning to "D" multiple-dwelling district (Special)
50239	Parking, Page Boulevard (Not codified)
50240	Adds § 8A(8), Ord. 45309, singlefamily and two-family dwellings (26.28.020)
50241	Amends § 18A(13), Ord. 45309, "E" multiple-family dwelling district (26.76.020)
50242	Authorizes contracts with state and federal governments for acquisition and distribution of surplus commodities (Special)
50243	Sale of property (Special)
50244	Relief of John J. Wagner (Special)

50245 Relief of John Snook (Special)

50246 Declares wharf master's office building surplus (Special)

50247 Vacates portion, Locust Street and Sixth Street (Special)

50248 Vacates St. Ange Ave. and alley, block 1250, repeals Ord. 49133 (Special)

50249 Authorizes lease of wharf, repeals Ord. 50112 (Special)

50250 Church stop, Euclid Ave. and Warwick (Not codified)

50251 Parking, Broadway (Not codified)

50252 Parking, Grand Ave. (Not codified)

50253 Stop intersection, Goodfellow Boulevard and Stratford Ave. (Not codified)

50254 Repeals Ord. 49584 (Repealer)

50255 Amends Part 3, 1948 Code, changes zoning to "K" unrestricted district (Special)

50256 Authorizes contract with state highway commission for establishment of state highway (Special)

50257 Amends § 26, Ch. 55, 1948 Code, special meter water rates (23.20.020, 23.20.030)

50258 Conditional vacation various streets (Special)

50259 Authorizes contract with state highway commission for maintenance of Red Feather Highway (Special)

50260 Classified service and compensation plan (Ch. 4.10)

50261 Approves development plan submitted by Civic Center Redevelopment Corporation for blighted area (Special)

50262 Approves development plan submitted by Civic Center Redevelopment Corporation for blighted area (Special)

50263 Approves downtown sports stadium project redevelopment plan for blighted area (Special)

50264 Sale of property (Special)

50265 Sale of property (Special)

50266 Sale of property (Special)

50267 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50268 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50269 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

50270 Establishes off-street parking lot (Special)

50271 Amends § 98, Ch. 23, 1948 Code, as amended by Ord. 49950, treasury division employees salaries and appointments (4.26.010, 4.26.020)

50272 Establishes certain land as part of Mississippi River flood control protection project (Special)

50273 Minimum building standards for schools, repeals Ord. 49545 (Repealed by 60664)

50274 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

50275 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50276 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50277 Relief of Almeda Dean (Special)

50278 Establishes fire lane, Cozens Ave. (Not codified)

50279 Establishes fire lane, Kennerly Ave. (Not codified)

50280 Additional appropriation (Special)

50281 Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)

50282 Amends § 1, Ord. 43726, traffic-control intersections (Not codified)

50283 Amends Ord. 49952, establishes highway (Special)

50284 Obscene material (Ch. 15.32)

50285 Prohibits commercial vehicles, Cote Brilliante Ave. (Not codified)

50286 Parking, Forest Ave. (Not codified)

50287 Parking, Elizabeth Ave. (Not codified)

50288 Parking, Macklind Ave., repeals §§ 2 and 3, Ord. 46657 (Not codified)

50289 Repeals Ord. 44859 (Repealer)

50290 Parking, McDonald Ave. (Not codified)

50291 Parking, Kingshighway Boulevard (Not codified)

50292 Parking, York Court (Not codified)

50293 Stop intersection, Walnut Street and Ninth Street (Not codified)

50294 Parking, Shreve Ave. (Not codified)

50295 Repeals Ord. 39011 (Repealer)

50296 Parking, Fourteenth Street viaduct (Not codified)

50297 Parking, Wilson Ave., repeals §§ 2 and 3, Ord. 46615 (Not codified)

50298 Parking, East Road (Not codified)

50299 Parking, Hampton Ave. (Repealed by 52910)

50300 Parking, Sullivan Ave. (Not codified)

50301 Parking, Ninth Street (Not codified)

50302 Parking, Cole Street (Not codified)

50303 Stop intersection, Greer Ave. and Taylor Ave. (Not codified)

50304 Stop intersection, Elmbank Ave. and Taylor Ave. (Not codified)

50305 Stop intersection, Juniata Street and Bent Ave. (Not codified)

50306 Parking, Race Course Ave. (Not codified)

50307 Amends § 1, Ord. 49896, designates Cleveland Ave. one-way street (Not codified)

50308 Parking, Hampton Ave. (Not codified)

50309 Designates Germania Street major street (Not codified)

50310 Church stop, Washington Ave. and Ewing Ave. (Not codified)

50311 Prohibits commercial vehicles, Miami Street (Not codified)

50312 Stop intersection, Spruce Street and Fourteenth Street (Not codified)

50313 Designates Vista Ave. one-way street (Not codified)

50314 Designates Norfolk Ave. one-way street (Not codified)

50315 Designates Hunt Ave. one-way street (Not codified)

50316 Designates Taylor Ave. one-way street (Not codified)

50317 Repeals § 33, Ord. 45260 (Repealer)

50318 Designates Northland Ave. one-way street (Not codified)

50319 Designates Maffitt Ave. one-way street (Not codified)

50320 Parking, Manchester Ave. (Not codified)

50321 Parking, Manchester Ave. (Not codified)

50322 Parking, Manchester Ave. (Not codified)

50323 Parking, McCausland Ave. (Not codified)

50324 Amends § 4(24)(24a), Ord. 46525, parking, Ninth Street (Not codified)

50325 Parking, Ninth Street (Not codified)

50326 Parking, Market Street (Not codified)

50327 Vehicle drivers to stop for school bus (Repealed by 57831)

50328 Prohibits commercial vehicles, Lexington Ave. (Not codified)

50329 Prohibits commercial vehicles, Ashland Ave. (Not codified)

50330 Prohibits commercial vehicles, Palm Street (Not codified)

50331 Parking, Euclid Ave. (Not codified)

50332 Amends § 12(17), Ord. 46525, designates Sixth Street one-way street (Not codified)

50333 Amends § 8(18), Ord. 46525, parking, Twenty-third Street (Not codified)

50334 Amends § 8(13), Ord. 46525, parking, Seventeenth Street (Not codified)

50335 Amends § 4(25), Ord. 46525, parking, Seventeenth Street (Not codified)

50336 Designates Ellendale Ave. major street (Not codified)

50337 Parking, Hampton Ave. (Not codified)

50338 Repeals Ord. 49351 (Repealer)

50339 Parking, Bircher Boulevard (Not codified)

50340 Parking, Ferris Ave. (Not codified)

50341 Parking, Newstead Ave. (Repealed by 51541)

50342 Parking, Gravois Ave. (Not codified)

50343 Parking, Macklind Ave. (Repealed by 50652)

50344 Repeals § 14, Ord. 40173 (Repealer)

50345 Repeals Ord. 44062 (Repealer)

50346 Parking, Compton Ave. (Not codified)

50347 Parking, Academy Ave. (Not codified)

50348 Parking, Loughborough Ave. (Not codified)

50349 Parking, Devonshire Ave. (Not codified)

50350 Parking, Devonshire Ave. (Not codified)

50351 Stop intersection, Sutherland Ave. and Brannon Ave. (Not codified)

50352 Parking, Fyler Ave. (Not codified)

50353 Stop intersection, Whittier Street and St. Ferdinand Ave., repeals Ord. 47582 (Not codified)

50354 Prohibits commercial vehicles, Beethoven Ave. (Not codified)

50355 Prohibits commercial vehicles, Osceola Street (Not codified)

50356 Prohibits commercial vehicles, Bingham Ave. (Not codified)

50357 Prohibits commercial vehicles, Fillmore Street (Not codified)

50358 Prohibits commercial vehicles, Eichelberger Street (Not codified)

50359 Prohibits commercial vehicles, Bowen Street (Not codified)

50360 Parking, Morgan Ford Road (Repealed by 50904)

50361 Parking, McCausland Ave. (Not codified)

50362 Stop intersection, Wellington Court and Ellendale Ave. (Not codified)

50363 Stop intersection, Wellington Ave. and Ellendale Ave., repeals Ord. 49957 (Not codified)

50364 Parking, Macklind Ave. (Not codified)

50365 Parking, Macklind Ave. (Not codified)

50366 Parking, Macklind Ave. (Not codified)

50367 Parking, Mitchell Ave. (Not codified)

50368 Parking, McCausland Ave. (Not codified)

50369 Parking, McCausland Ave. (Not codified)

50370 Repeals Ord. 45220 (Repealer)

50371 Playground stop, Oakland Ave. and Tamm Ave. (Not codified)

50372 Yield right-of-way sign, Blendon Place (Not codified)

50373 Authorizes agreement with land clearance for redevelopment authority and Civic Center Redevelopment Corporation for redevelopment of downtown sports stadium project (Special)

50374 Parking, Papin Street (Not codified)

50375 Parking, Howell Street (Not codified)

50376 Parking, Bulwer Ave. (Not codified)

50377 Designates Wabada Ave. one-way street (Not codified)

50378 Parking, Sacramento Ave. (Not codified)

50379 Parking, York Ave. (Not codified)

50380 Parking, Twenty-third Street (Not codified)

50381 Parking, Lucas Ave. (Not codified)

50382 Parking, Forest Park Ave. (Repealed by 51489)

50383 Amends § 926, Ch. 69, 1948 Code, designates Belt Ave. major street (Not codified)

50384 Repeals Ord. 46441 (Repealer)

50385 Repeals Ord. 47890 (Repealer)

50386 Parking, Chevrolet Ave. (Not codified)

50387 Parking, Julia Street (Not codified)

50388 Parking, Miller Street (Not codified)

50389 Parking, Lafayette Ave. (Not codified)

50390 Designates Blendon Place one-way street (Not codified)

50391 Parking, Barton Street (Repealed by 51024)

50392 Parking, Ann Ave. (Not codified)

50393 Parking, McNair Ave. (Not codified)

50394 Parking, California Ave. (Not codified)

50395 Parking, Sarah Street (Not codified)

50396 Parking, Gravois Ave. (Not codified)

50397 Parking, Walsh Street (Not codified)

50398 Parking, Walsh Street (Not codified)

50399 Parking, Alabama Ave. (Repealed by 52215)

50400 Parking, Laclede Ave. (Not codified)

50401 Parking, Semple Ave. (Not codified)

50402 Parking, Park Ave. (Not codified)

50403 Parking, Jefferson Ave. (Not codified)

50404 Parking, Grand Ave. (Not codified)

50405 Parking, Grand Ave. (Not codified)

50406 Parking, Chouteau Ave. (Not codified)

50407 Designates Bowen Street one-way street (Not codified)

50408 Parking, Second Street (Not codified)

50409 Parking, Third Street (Not codified)

50410 Parking, Sidney Street (Not codified)

50411 Stop intersection, Jefferson Ave. and Stoddard Street (Not codified)

50412 Repeals Ord. 40919 (Repealer)

50413 Parking, Rosedale Ave. (Not codified)

50414 Parking, Rosedale Ave. (Not codified)

50415 Parking, Hodiamont Ave. (Not codified)

50416 Parking, Mallinckrodt Street (Repealed by 51477)

50417 Parking, Salisbury (Repealed by 50875)

50418 Stop intersection, Fourteenth Street and Branch Street (Not codified)

50419 Repeals Ord. 40834 (Repealer)

50420 Yield right-of-way, Lindell Ave. cutoff at Union Boulevard (Not codified)

50421 Parking, Euclid Ave. (Not codified)

50422 Repeals Ord. 47205 and Ord. 48469 (Repealer)

50423 Repeals Ord. 45037 (Repealer)

50424 Parking, Oakhill Ave. (Not codified)

50425 Playground stop, Newstead Ave. and San Francisco Ave. (Repealed by 51110)

50426 Stop intersection, Theresa Ave. and Olive (Not codified)

50427 School stop, Clara Ave. and Labadie Ave. (Repealed by 51304)

50428 Amends § 18(d), Ch. 40, 1948 Code, milk sanitation (Repealed by 55834)

50429 Vacates Childress Ave. (Special)

50430 Amends § 3(1), adds § 3(1a), Ord. 49933, retirement benefit (4.16.145, 4.16.150)

50431 Stop intersection, Locust and Theresa Ave., repeals Ord. 31663 (Not codified)

50432 Amends § 12(17), Ord. 46525, Sixth Street one-way street (Not codified)

50433 Parking, Broadway (Not codified)

50434 Repeals Ord. 49175 (Repealer)

50435 Repeals Ord. 49176 (Repealer)

50436 Prohibits commercial vehicles, Wells Ave. (Not codified)

50437 Parking, West Florissant Ave. (Not codified)

50438 Amends §§ 1 and 2, Ord. 47334, parking, Natural Bridge Ave. (Not codified)

50439 Amends § 1, Ord. 49898, Flad Ave. one-way street (Not codified)

50440 Designates alley, block 5565 one-way (Not codified)

50441 Parking, Germania Street (Repealed by 51685, 51829)

50442 School stop, Ninth Street and Madison Ave. (Not codified)

50443 Repeals § 335, Ord. 39011 (Repealer)

50444 Repeals § 1, Ord. 47408 (Repealer)

50445 Repeals Ord. 45249 (Repealer)

50446 School stop, Eleventh Street and Madison Ave. (Not codified)

50447 Parking, Trudeau Street (Not codified)

50448 Parking, Tenth Street (Not codified)

50449 Repeals Ord. 43020 (Repealer)

50450 Prohibits gasoline trucks on Calvary Ave., North Calvary Ave. and South Calvary Ave. (Repealed by 57831)

50451 Parking, Concord Place (Not codified)

50452 Repeals Ord. 46857 (Repealer)

50453 Parking, Skinker Boulevard (Not codified)

50454 Designates Terry Ave. one-way street (Not codified)

50455 Parking, West Florissant Ave. (Not codified)

50456 Repeals Ord. 47241 (Repealer)

50457 Parking, Wellington Ave. (Not codified)

50458 Parking, Taylor Ave. (Not codified)

50459 Left turn, Lindell Boulevard to Lake Ave. (Repealed by 57831)

50460 Repeals Ord. 45508 (Repealer)

50461 Parking, East Prairie Ave. (Not codified)

50462 Designates Bremen Ave. one-way street (Not codified)

50463 Parking, East Grand Ave. (Not codified)

50464 Designates Farrar Street one-way street (Not codified)

50465 Playground stop, Blair Ave. and Angelica Street (Not codified)

50466 Parking, Salisbury Street (Not codified)

50467 Parking, Salisbury Street (Not codified)

50468 Left turn, Chippewa Street to McCausland Ave. (Repealed by 57831)

50469 Stop intersection, Commonwealth Ave. and Piccadilly Ave. (Not codified)

50470 Designates Ellenwood Ave. one-way street (Not codified)

50471 Playground stop, Arsenal Street and Missouri Ave. (Not codified)

50472 Parking, Arsenal Street (Not codified)

50473 Stop intersection, Arsenal Street and Seventh Street (Not codified)

50474 Designates Schiller Place one-way street (Not codified)

50475 Parking, Flad Ave. (Not codified)

50476 Designates Morin Ave. one-way street (Not codified)

50477 Parking, Broadway (Not codified)

50478 Parking, Penrose Street (Not codified)

50479 Designates Gimblin Road one-way street (Not codified)

50480 Parking, Lookaway Drive (Not codified)

50481 Parking, Lookaway Drive (Not codified)

50482 Parking, Blow Street (Not codified)

50483 Parking, Astra Ave. (Not codified)

50484 Repeals Ord. 47817 (Repealer)

50485 Sale of property (Special)

50486 Sale of property (Special)

50487 Adds §§ 105 and 106, Ch. 13, 1948 Code, attendant at dry cleaning establishments (8.52.010, 8.52.060)

50488 Additional appropriation for election board (Special)

50489 Amends § 2, Ord. 50218, property description (Special)

50490 Amends Ord. 50219, appropriation (Special)

50491 Amends § 48, Ch. 52, 1948 Code, prisoners (16.16.240)

50492 Authorizes contracts for survey for central business index (Special)

50493 Alley improvement (Special)

50494 Amends Part 3, 1948 Code, changes zoning to "E" multiple-family dwelling district (Special)

50495 Conditional vacation, part Seventh Street (Special)

50496 Vacates part of Front Street (Special)

50497 Conditional vacation, Crittenden Street (Special)

50498 Conditional vacation, alley, block 2060 (Special)

50499 Conditional vacation, Dorcas Street and alleys, block 852 (Special)

50500 Conditional vacation, McKissock Ave. (Special)

50501	Conditional vacation, Lucas Ave. (Special)
50502	Enacts building code, Vol. 2, 1960 Code, repeals Part 1, Vol. 2, 1948 Code, 44733, 44753, 44754, 44755, 44756, 44894, 44898, 45145, 45223, 45308, 45315, 45316, 45317, 45318, 45321, 45322, 45552, 45563, 45582, 45583, 45702, 45857, 45948, 45949, 45969, 46254, 46278, 46279, 46363, 46364, 46395, 46589, 46590, 46693, 46694, 46761, 46787, 47306, 47376, 47389, 47399, 47421, 47422, 47424, 47770, 48153, 48154, 48155, 48885, 48886, 48887, 48915, 48917, 48918, 48919, 49526, 49535, 49547, Part II, Vol. 2, 1948 Code, Ords. 47339 and 48904, Ch. 11, Vol. 1, 1984 Code (25.01)
50503	Vacates alley (Special)
50504	Conditional alley vacation (Special)
50505	Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)
50506	Directs issuance of bonds (Special)
50507	Appropriation for acquisition of property for park (Special)
50508	Authorizes contract for plans for development of St. Louis Zoological Gardens (Special)
50509	Authorizes contracts for purchase of rights of way for flood control protection (Special)
50510	Authorizes contracts for resurfacing various streets (Special)
50511	Authorizes contracts for construction of subway (Special)
50512	Authorizes contracts for improvement of park areas and construction of community center (Special)
50513	Parking, Eighth Street (Not codified)
50514	Designates Lansdowne Ave. major street (Not codified)
50515	Stop intersection, Goodfellow Boulevard and Edward Ave. (Not codified)
50516	Parking, Bircher Boulevard (Not codified)
50517	Designates Floy Ave. one-way street (Not codified)
50518	Stop intersection, Theodore Ave. and Plover Ave. (Not codified)
50519	Parking, Theodosia Ave. (Not codified)
50520	Repeals Ord. 46871 (Repealer)
50521	Repeals § 1734, Ch. 69, 1948 Code (Repealer)
50522	Parking, Compton Ave. (Not codified)
50523	Repeals § 1771, Ch. 69, 1948 Code (Repealer)
50524	Parking, Lafayette Ave. (Not codified)
50525	Parking, Taylor Ave. (Not codified)
50526	Parking, Clayton Ave. (Not codified)
50527	Parking, Spring Ave. (Not codified)
50528	Parking, West Florissant Ave. (Not codified)
50529	Repeals § 1602, Ch. 69, 1948 Code (Repealer)
50530	Parking, Meramec Street (Not codified)
50531	Parking, Chestnut Street (Not codified)
50532	Parking, Third Street service ramp (Not codified)
50533	Stop intersection, Market Street and Fourth Street (Not codified)
50534	Parking, Valentine Street (Not codified)
50535	Parking, Sixth Street (Not codified)
50536	Parking, Ellendale Ave. (Not codified)
50537	Stop intersection, Lambdin Ave. and Ashland Ave. (Not codified)
50538	Designates Maple Ave. one-way street (Repealed by 51490)
50539	Repeals § 1854, Ch. 69, 1948 Code (Repealer)
50540	Parking, Morgan Ford Road (Not codified)
50541	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
50542	Authorizes transfer of funds for establishing various streets (Special)
50543	Authorizes contracts for improvement of park area (Special)

50544 Appropriation for acquisition of land for park (Special)

50545 Changes Olive Street, to Gas Light Square (Repealed by 56434)

50546 Authorizes contracts for resurfacing streets and alleys in Cherokee rehabilitation area (Special)

50547 Amends §§ 3—6 and 8—11, Ord. 45309, zoning (Title 26)

50548 Amends § 1, Ord. 45224, restaurants (11.42.936)

50549 Adopts 1960 Code (Special)

50550 Authorizes contracts for improvement of park area (Special)

50551 Appropriations for current expenses (Special)

50552 Establishes tax rate for 1961 (5.26.010—5.26.050)

50553 Prohibits discrimination in public places (Repealed by 57173)

50554 Amends § 10, Ch. 46, 1948 Code, contributing to delinquency of minors (Repealed by 56591)

50555 Parking, Union Boulevard, repeals Ord. 50157 (Not codified)

50556 Amends § 16, Ch. 37, 1948 Code, licenses, repeals Ord. 48420 (8.02.140)

50557 Approves agreement with St. Louis County for joint airport (Special)

50558 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50559 Dance studios, rates (Ch. 8.34)

50560 Amends § 37(e), Ch. 56, 1948 Code, rat control (11.08.370)

50561 Amends § 46, Ch. 72, 1948 Code, fees for weights and measures (9.04.040)

50562 Amends Part 3, 1948 Code, changes zoning to "G" commercial district (Special)

50563 Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)

50564 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (special)

50565 Authorizes contracts for street lighting (Special)

50566 Authorizes contracts for street lighting (Special)

50567 Authorizes contracts for street lighting (Special)

50568 Authorizes contracts for street lighting (Special)

50569 Authorizes contracts for surveys and plans for construction of new Chronic Hospital (Special)

50570 Vacates portion, Bircher Boulevard (Special)

50571 Magistrate court employees compensation and classification schedule (4.24.010)

50572 Vacates portion, Parnell Street, authorizes sale (Special)

50573 Authorizes acceptance of funds for items for psychiatric ward at Malcolm Bliss Mental Health Center (Special)

50574 Amends §§ 19 and 21, Ch. 2, 1948 Code, board of aldermen employee salaries, repeals Ords. 45486, 45559, 46336, 48611 and 50052 (Repealed by 52743, 53377)

50575 Authorizes acceptance of funds to install traffic control signals, Union Boulevard and Sacramento Ave. (Special)

50576 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50577 Amends Art. 3, Ch. 60, 1948 Code, Mullanphy Board, repeals Ords. 48379 and 48498 (3.36.400—3.36.455)

50578 Sale of property (Special)

50579 Sale of property (Special)

50580 Sale of property (Special)

50581 Sale of property (Special)

50582 Sale of property (Special)

50583 Establishes site for park, authorizes purchase of site (Special)

50584 Amends Ord. 49952, establishes highway (Special)

50585 Authorizes contracts for widening Southwest Ave. Bridge (Special)

50586 Additional appropriation for laundry facilities for various hospitals (Special)

50587 Authorizes contracts for repairing Jefferson Ave. viaduct (Special)

50588 Authorizes contracts for revision in Weil Ave. and River Des Peres Parkway (Special)

50589 Authorizes contracts for improvement, Park Ave. (Special)

50590 Vacates Seventeenth Street and Walnut Street (Repealed by 52771)

50591 Appropriation for acquiring rights of way for expressways (Special)

50592 Appropriation for cooperation agreement with land clearance for redevelopment authority (Special)

50593 Appropriation for cooperation agreement with land clearance for redevelopment authority (Special)

50594 Authorizes contracts for construction of building and garage for traffic division (Special)

50595 Prohibits commercial vehicles, Berthold Ave., Wise Ave. and Hereford Street (Not codified)

50596 Parking, Macklind Ave. (Not codified)

50597 Prohibits commercial vehicles, Osceola Street (Not codified)

50598 Prohibits driving vehicle or bicycle in parking lot in careless and heedless manner (Repealed by 57831)

50599 Parking, Valentine Street (Not codified)

50600 Parking, Delor Street (Not codified)

50601 Parking, Delor Street (Not codified)

50602 Amends § 1, Ord. 50356, prohibits commercial vehicles, Bingham Ave. (Not codified)

50603 Amends § 1, Ord. 50355, prohibits commercial vehicles, Osceola Street (Not codified)

50604 Amends § 1, Ord. 50354, prohibits commercial vehicles, Beethoven Ave. (Not codified)

50605 Parking, Broadway (Not codified)

50606 Parking, Washington Ave. (Not codified)

50607 Amends § 11, adds §§ 11a and 11b, Ord. 47000, parking, Fourth Street (Not codified)

50608 Vacates Poepping Street (Special)

50609 Amends § 1, Ord. 50501, conditional vacation, Lucas Ave. (Special)

50610 Conditional vacation, part Third Street and Washington Ave. (Special)

50611 Vacates part Spruce Street, Leffingwell Ave., Clark Ave. and alley, block 1727-A (Special)

50612 Declares November 11 Veterans Day, repeals Ord. 31073 (1.32.020)

50613 Appropriation for appraising bus and street railway companies (Special)

50614 Authorizes contracts for resurfacing streets and alleys in Compron-Eads area (Special)

50615 Vacates Walsh Street (Special)

50616 Amends Ord. 47743, conditional vacation, certain streets and alleys, repeals Ord. 48689 (Special)

50617 Authorizes contracts for construction of roof on Henry W. Kiel Auditorium (Special)

50618 Additional appropriation for construction of bridge (Special)

50619 Authorizes contracts for improvement, Rock Island Highway (Special)

50620 Authorizes contracts for improvement, Fourteenth Street (Special)

50621 Authorizes contracts for construction of parking lots (Special)

50622 Appropriation for payment to joint city-county airport commission (Special)

50623 Establishes price of copies of 1960 Code, portions or supplements thereto (Special)

50624 Amends § 145.070, 1960 Code, earnings tax employer compensation (5.22.070)

50625 Stop intersection, Howard Street and Leffingwell Ave. (Special)

50626 Parking, Broadway (Repealed by 51831)

50627	Designates Warwick Ave. one-way street (Not codified)
50628	Parking, Meramec Street (Repealed by 51193)
50629	Designates Leduc Street one-way street (Not codified)
50630	Designates Cote Brilliante Ave. one-way street (Not codified)
50631	Designates Aldine Ave. one-way street (Not codified)
50632	Designates Lotus Ave. one-way street (Not codified)
50633	Amends § 1, Ord. 50425, playground stop, Newstead Ave. and San Francisco Ave. (Not codified)
50634	Designates Highland Ave. one-way street (Not codified)
50635	Designates Terry Ave. one-way street (Not codified)
50636	Designates Terry Ave. one-way street (Not codified)
50637	Repeals Ord. 46284 (Repealer)
50638	Parking, Howell Street (Not codified)
50639	Parking, Logan Street (Not codified)
50640	Parking, Loughborough Ave. (Not codified)
50641	Parking, Bates Street (Not codified)
50642	Alley improvement, block 5797 (Special)
50643	Parking, Macklind Ave. (Not codified)
50644	Parking, Manchester Ave. (Not codified)
50645	Parking, Macklind Ave. (Not codified)
50646	Parking, Macklind Ave. (Not codified)
50647	Parking, Macklind Ave. (Not codified)
50648	Parking, Hampton Ave. (Not codified)
50649	Parking, Elizabeth Ave. (Not codified)
50650	Amends § 1, Ord. 50439, Flad Ave. one-way street (Not codified)
50651	Parking, Sulphur Ave. (Not codified)
50652	Repeals Ord. 50343 (Repealer)
50653	School stop, northbound off ramp of McKinley Bridge and Ninth Street (Not codified)
50654	Vacates part of Hadley Street, authorizes transfer of title (Special)
50655	Ratifies grant agreement for federal airport aid project No. 9-23-034-6115 (Special)
50656	Sale of property (Special)
50657	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
50658	Authorizes contracts for incinerator for waste at Zoological Park (Repealed by 50912)
50659	Parking, Fourth Street (Not codified)
50660	Repeals § 1(17), Ord. 46525 (Repealer)
50661	Classified service and compensation plan (Ch. 4.10)
50662	Amends § 4(36), adds § 4(36a), Ord. 46525, parking, Twenty-first Street (Not codified)
50663	Parking, Eighth Street (Not codified)
50664	Parking, Delmar Boulevard (Not codified)
50665	Stop intersection, Chestnut Street and Fourth Street (Not codified)
50666	Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)
50667	Amends Part 3, 1948 Code, changes zoning to "J" industrial district (Special)
50668	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
50669	Amends Part 3, 1948 Code, changes zoning to "D" multiple-family dwelling district (Special)
50670	Vacates area at Ninth Street and Lynch Street (Special)
50671	Sale of property (Special)
50672	Sale of property (Special)
50673	Sale of property, repeals Ord. 50579 (Special)
50674	Sale of property (Special)
50675	Sale of property (Special)
50676	Sale of property (Special)

50677 Sale of property (Special)

50678 Directs issuance of bonds (Special)

50679 Additional appropriation for metropolitan youth commission (Special)

50680 Appropriation for Tower Grove Park board of commissioners for operation expenses for park (Special)

50681 Authorizes payment to federal government for Jefferson National Expansion Memorial (Special)

50682 Prohibits commercial vehicles, Berthold Ave. (Not codified)

50683 Prohibits commercial vehicles, Tamm Ave. (Not codified)

50684 Adds § 1508.0, Art. 15, Ord. 50502, inspection fees (Repealed by 56797)

50685 Authorizes lease with Columbia Broadcasting System, Inc. (Special)

50686 Sale of property (Special)

50687 Sale of property (Special)

50688 Authorizes grant of easement to Union Electric Co. (Special)

50689 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

50690 Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Special)

50691 Amends district map 1960, changes zoning to "G" commercial district (Special)

50692 Amends district map 1960, changes zoning to "H" commercial district (Special)

50693 Defines blighted areas (Special)

50694 Vacates Water Street, alley, block 3250, repeals Ord. 50028 (Special)

50695 Vacates easements (Special)

50696 Improvement, Scanlan Ave. (Special)

50697 Amends § 915.020, zoning use exceptions (26.72.020)

50698 Amends district map 1960, changes zoning to "A" single-family dwelling district (Special)

50699 Prohibits removing grocery carts from premises (Ch. 15.70)

50700 Provides for special election for issuance of bonds (Special)

50701 Provides for special election for issuance of bonds (Special)

50702 Submits tax increase for free public library to voters (Special)

50703 Submits tax increase for Zoological Park to voters (Special)

50704 Submits tax increase for art museum to voters (Special)

50705 Establishes certain land as part of Mississippi River flood protection project (Special)

50706 Amends district map 1960, changes zoning to "B" two-family dwelling district (Special)

50707 Amends §§ 335.010, 335.260, 335.270, 335.280 and 335.340, 1960 Code, firemen's retirement system (Ch. 4.18)

50708 Sale of property (Special)

50709 Amends 1960 Code, 404.030, 404.090, 404.100, 404.130, 404.150, 404.200, 404.230(16), 405.130, 406.030, 406.040, 407.040, repeals § 405.140, hotels and rooming houses (Repealed by 60828)

50710 Stop intersection, Clara Ave. and Wabada Ave., repeals Ord. 44419 (Not codified)

50711 Stop intersection, Kennerly Ave. and Clara Ave. (Not codified)

50712 Stop intersection, Hebert Street and Clara Ave (Not codified)

50713 Stop intersection, Clara Ave. and Maple Ave. (Not codified)

50714 Stop intersection, Clara Ave. and Cote Brilliante Ave. (Not codified)

50715 Repeals Ord. 44242 (Repealer)

50716 Parking, Tholozan Ave., repeals Ord. 50050 (Repealed)

50717 Stop intersection, Market Street and Fourth Street (Not codified)

50718 Repeals Ord. 42981 (Repealer)

50719 Stop intersection, Temple Place and Julian Ave. (Not codified)

50720 Stop intersection, Highland Ave. and Hodiamont Ave. (Not codified)

50721 Stop intersection, Ridge Ave. and Temple Place (Not codified)

50722 Stop intersection, Wabada Ave. and Hodiamont Ave. (Not codified)

50723 Designates Blackstone Ave. one-way street (Not codified)

50724 Stop intersection, Cote Brilliante Ave. and Hodiamont Ave. (Not codified)

50725 Stop intersection, Shawmut Place and Ridge Ave. (Not codified)

50726 Stop intersection, Julian Ave. and Blackstone Ave. (Not codified)

50727 Designates Roosevelt Place one-way street (Not codified)

50728 Parking, Lafayette Ave. (Not codified)

50729 Parking, Bates Street (Not codified)

50730 Parking, Twenty-third Street (Not codified)

50731 Parking, Hunt Ave. (Not codified)

50732 Repeals Ord. 47735 (Repealer)

50733 Repeals § 6, Ord. 44992 (Repealer)

50734 Stop intersection, Kennerly Ave. and Hodiamont Ave. (Not codified)

50735 Designates Theodosia Ave. one-way street (Not codified)

50736 Designates Shawmut Place one-way street (Not codified)

50737 Designates Temple Place one-way street (Not codified)

50738 Stop intersection, Saint Edward Ave. and Clara Ave. (Not codified)

50739 Stop intersection, Terry Ave. and Clara Ave. (Not codified)

50740 Designates alley, block 5112B one-way (Not codified)

50741 Additional appropriation (Special)

50742 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

50743 Addition to Lambert-St. Louis Municipal Airport (18.04.030E)

50744 Appropriation for planning developments at Lambert-St. Louis Municipal Airport (Special)

50745 Parking, Warren Street (Repealed by 52480)

50746 Traffic-control signals, various intersections (Not codified)

50747 Parking, Seventeenth Street (Not codified)

50748 Parking, Newstead Ave. (Not codified)

50749 Designates Norfolk Ave. one-way street (Not codified)

50750 Designates Hunt Ave. one-way street (Not codified)

50751 Parking, Germania Street (Not codified)

50752 Parking, Mitchell Ave. (Not codified)

50753 Parking, Forest Ave. (Not codified)

50754 Parking, Clayton Ave., repeals Ord. 47850 (Not codified)

50755 Parking, Mitchell Ave. (Not codified)

50756 Parking, Newstead Ave. (Repealed by 51541)

50757 Parking, Lexington Ave. (Not codified)

50758 Parking, Euclid Ave. (Not codified)

50759 Designates alley, block 4520, one-way (Repealed by 51449)

50760 Parking, Fyler Ave. (Repealed by 51306)

50761 Designates Bancroft Ave. one-way street (Not codified)

50762 Stop intersection, Hurck Street and Minnesota Ave. (Not codified)

50763 Parking, Holly Hills Ave. (Not codified)

50764 Amends § 4(36), adds § 4(36a), Ord. 46525, parking, Twenty-first Street (Not codified).

50765 Stop intersection, Montgomery and Twenty-fifth Street (Not codified)

50766 Repeals § 1615, Ch. 69, 1948 Code (Repealer)

50767 Parking, Thirteenth Street (Not codified)

50768 Fire lane, Commercial Street (Not codified)

50769	Repeals § 1755, Ch. 69, 1948 Code (Repealer)
50770	Designates Lotus Ave. one-way street (Not codified)
50771	Designates Plymouth Ave. one-way street (Not codified)
50772	Designates Highland Ave. one-way street (Not codified)
50773	Repeals Ord. 48262 (Repealer)
50774	Parking, Lucas Ave. (Not codified)
50775	Parking, Reilly Ave. (Not codified)
50776	Amends § 5(13), Ord. 46525, parking, Seventeenth Street (Not codified)
50777	Stop intersection, Thirteenth Street and Palm Street (Not codified)
50778	Repeals Ord. 42683 (portion) (Repealer)
50779	Parking, Wright Street (Not codified)
50780	Parking, Hampton Ave. (Not codified)
50781	Repeals Ord. 44729 (Repealer)
50782	Repeals Ord. 49643 (Repealer)
50783	Parking, Clarence Ave. (Not codified)
50784	Parking, St. Louis Ave. (Not codified)
50785	Stop intersection, Clara Ave. and Ridge Ave. (Not codified)
50786	Stop intersection, Clara Ave. and Maffitt Ave. (Not codified)
50787	Designates Nagel Ave. one-way street (Not codified)
50788	Designates Blow Street one-way street (Not codified)
50789	Designates Quincy Street one-way street (Not codified)
50790	Designates Sunshine Drive one-way street (Not codified)
50791	Designates Robert Ave. one-way street (Not codified)
50792	Repeals § 1737, Ch. 69, 1948 Code (Repealer)
50793	Amends § 1, Ord. 50425, playground stop, Newstead Ave. and San Francisco Ave. (Not codified)
50794	Designates Walsh Street one-way street (Not codified)
50795	Parking, Harlan Ave. (Not codified)
50796	Parking, Broadway (Not codified)
50797	Stop intersection, Minerva Ave. and Blackstone Ave. (Not codified)
50798	Parking, St. Louis Ave. (Not codified)
50799	Stop intersection, Ashland Ave. and Clara Ave. (Not codified)
50800	Amends § 3(10), adds §§ 3(10a and l0b), Ord. 46525, parking, Hampton Ave. (Not codified)
50801	Parking, Alabama Ave. (Not codified)
50802	Designates Kossuth Ave. one-way street (Not codified)
50803	Designates Farlin Ave. one-way street (Not codified)
50804	Parking, McCausland Ave., repeals §§ 1(21), 2(26), Ord. 46525 (Not codified)
50805	School stop, Ashland Ave. and Clara Ave., repeals Ord. 45519 (Not codified)
50806	Parking, Howell Street (Not codified)
50807	Parking, Macklind Ave. (Not codified)
50808	Parking, Vista Ave. (Not codified)
50809	Parking, Ridgewood Ave. (Not codified)
50810	Parking, Biddle Street (Not codified)
50811	Amends Ord. 49952, establishes highway (Special)
50812	Vacates alley, block 2356 (Special)
50813	Parking, Forest Park, repeals Ord. 49524 (Repealed by 51358)
50814	Parking, Oakland Ave. (Not codified)
50815	Parking, Hadley Street (Not codified)
50816	Stop intersection, Madison and Fourteenth Street (Not codified)
50817	Designates Mullanphy Street one-way street (Not codified)
50818	Prohibits commercial vehicles, Sullivan Ave. (Not codified)
50819	Repeals Ord. 45036 (Repealer)
50820	Repeals Ord. 47407 (Repealer)
50821	Parking, St. Louis Ave. (Not codified)
50822	Repeals Ord. 42115 (Repealer)

50823 Parking, Palm Street (Not codified)

50824 Parking, Cass Ave. (Not codified)

50825 Parking, Thirteenth Street (Not codified)

50826 Parking, Madison Ave. (Not codified)

50827 Parking, Thirteenth Street (Not codified)

50828 Stop intersection, Greer Ave. and Clara Ave. (Not codified)

50829 Parking, Hodiamont Ave. (Not codified)

50830 Repeals Ord. 48672 (Repealer)

50831 Designates Kennerly Ave. one-way street (Not codified)

50832 Parking, Goodfellow Boulevard (Not codified)

50833 Stop intersection, Wells Ave. and Clara Ave., repeals Ord. 44060 (Not codified)

50834 School stop, Labadie Ave. and Clara Ave. (Repealed by 51304)

50835 Stop intersection, Clara Ave. and Labadie Ave. (Not codified)

50836 Parking, Kennerly Ave. (Not codified).

50837 Parking, Page Boulevard (Not codified)

50838 Parking, Page Boulevard (Not codified)

50839 Designates Kennerly Ave. one-way street (Not codified)

50840 Amends § 2(20), Ord. 46525, parking, Laclede Ave. (Not codified)

50841 Repeals Ord. 44584 (Repealer)

50842 Parking, Market Street (Not codified)

50843 Parking, Fifteenth Street (Repealed by 52287)

50844 Designates Maffitt Ave. one-way street (Not codified)

50845 Appropriation for acquisition of property to establish Lansdowne Ave. (Special)

50846 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

50847 Authorizes contracts for improvement, Fourteenth Street (Special)

50848 Authorizes survey for improved accounting and recording procedures at municipal court (Special)

50849 Purchase of land (Special)

50850 Parking meter division compensation plan and duty schedule (4.30.010)

50851 Amends § 98, Ch. 23, 1948 Code, treasury division appointment and salaries (4.26.010, 4.26.020)

50852 Sale of property (Special)

50853 Additional appropriation for special election expenses (Special)

50854 Sale of property (Special)

50855 Vacates certain streets and alleys in Mill Creek Valley redevelopment area (Special)

50856 Authorizes transfer of title of St. Louis Armory to adjutant general of Missouri (Special)

50857 Repeals § 35, Ord. 45260 (Repealer)

50858 Parking, Prange Ave. (Repealed by 51764)

50859 Amends § 1, Ord. 50100, parking, Penrose Ave. (Not codified)

50860 Submits to voters question of indebtedness and issuance of bonds (Special)

50861 Stop intersection, Wren Ave. and Theodore Ave. (Not codified)

50862 Parking, Penrose Street (Not codified)

50863 Authorizes easement agreement with Illinois Power Co. for gas pipe lines (Special)

50864 Improvement, Thirty-eighth Street (Special)

50865 Improvement, Itaska Street (Special)

50866 Amends district map 1960, changes zoning to "G" commercial district (Special)

50867 Sale of property (Special)

50868 Additional appropriation for printing 1960 Code (Special)

50869 Stop intersection, Fair Ave. and Carter Ave. (Not codified)

50870 Stop intersection, Carter Ave. and Fair Ave. (Not codified)

50871	Vacates alley, repeals Ord. 48495 (Special)
50872	Parking, Carter Ave. (Not codified)
50873	Stop intersection, Bissell Street and Strodtman Place (Not codified)
50874	Parking, Ulena Ave. (Not codified)
50875	Parking, Salisbury Street, repeals Ord. 50417 (Not codified)
50876	Parking, Castleman Ave. (Not codified)
50877	Repeals § 2, Ord. 47049 (Repealer)
50878	Parking, Carrie Ave. (Not codified)
50879	Designates Klein Street one-way street (Not codified)
50880	Designates Palm Street one-way street (Not codified)
50881	Designates Branch Street one-way street, repeals Ord. 49753 (Not codified)
50882	Parking, Thirteenth Street (Not codified)
50883	Church stop, Grand Ave. and Lee Ave. (Not codified)
50884	Parking, North Market Street (Not codified)
50885	Parking, North Florissant Ave. (Not codified)
50886	Repeals Ord. 48271 (Repealer)
50887	Parking, St. Louis Ave. (Not codified)
50888	School stop, Cote Brilliante and Prairie Ave., repeals Ord. 47830 (Not codified)
50889	Parking, Baldwin Street (Not codified)
50890	Prohibits commercial vehicles, Bancroft Ave. (Not codified)
50891	Repeals Ord. 48952 (Repealer)
50892	Stop intersection, Wellington Court and Ellendale Ave. (Not codified)
50893	Stop intersection, Wellington Ave. and Ellendale Ave. (Not codified)
50894	Parking, Fyler Ave. (Not codified)
50895	Prohibits commercial vehicles, Macklind Ave. (Not codified)
50896	Prohibits commercial vehicles, Clifton Ave. (Not codified)
50897	Stop intersection, January Ave. and Lisette Ave. (Not codified)
50898	Parking, Gravois (Not codified)
50899	Parking, Eichelberger Street (Not codified)
50900	Parking, Gravois (Not codified)
50901	Parking, Hampton Ave. (Not codified)
50902	Parking, Loughborough Ave. (Not codified)
50903	Amends § 1, Ord. 47980, parking, Gustine Ave. (Not codified)
50904	Amends § 1, Ord. 50360, parking, Morgan Ford Road (Not codified)
50905	Repeals Ord. 49199 (Repealer)
50906	Stop intersection, Cleveland Ave. and Lawrence Street (Not codified)
50907	Stop intersection, Lawrence Ave. and DeTonty Street (Not codified)
50908	Parking, Morgan Ford Road (Not codified)
50909	Designates Alfred Ave. one-way street (Not codified)
50910	Designates Portis Ave. one-way street (Not codified)
50911	Parking, Gurney Ave. (Not codified)
50912	Amends § 2, Ord. 45799, parking, Forest Park Ave. (Repealed by 53263)
50913	Parking, Natural Bridge Ave. (Not codified)
50914	Parking, Natural Bridge Ave., repeals Ord. 49052 (Not codified)
50915	Parking, Labadie Ave. (Not codified)
50916	Prohibits commercial vehicles, Ashland Ave. (Not codified)
50917	Repeals lines 4 and 5, page 1281, § 888.040, 1960 Code (Repealer)
50918	Parking, McCausland Ave. (Not codified)
50919	Parking, East Road (Not codified)
50920	Stop intersection, Cutter Ave. and Dale Ave. (Not codified)
50921	Stop intersection, Forest Ave. and Date Ave. (Not codified)

50922 Parking, Kingshighway Boulevard (Not codified)

50923 Parking, Watson Road (Not codified)

50924 Parking, Mitchell Ave. (Not codified)

50925 Parking, Clayton Ave. (Not codified)

50926 Parking, Clayton Ave., repeals Ord. 47850 (Not codified)

50927 Parking, Clayton Ave. (Not codified)

50928 Parking, Oakland Ave. (Not codified)

50929 Parking, Union Boulevard (Repealed by 51399, 51858)

50930 Stop intersection, Walton Ave. and Olive Street (Not codified)

50931 Parking, Enright Ave. (Not codified)

50932 Parking, Lindell cutoff (Not codified)

50933 Amends § 773.010, 1960 Code, prostitution (Repealed by 57834)

50934 Amends § 773.060, 1960 Code, prostitution (Repealed by 57834)

50935 Parking, Farrar Street (Not codified)

50936 Parking, Montgomery Street (Not codified)

50937 Parking, Ridgewood Ave. (Not codified)

50938 Designates Semple Ave. one-way street (Not codified)

50939 Parking, Sutherland Ave. (Not codified)

50940 Prohibits commercial vehicles, Hartford Street (Not codified)

50941 Prohibits commercial vehicles, Juniata Street (Not codified)

50942 Parking, McCausland Ave. (Not codified)

50943 Designates Bancroft Ave. one-way street (Not codified)

50944 Amends district map 1960, changes zoning to "C" multiple-famly dwelling district (Special)

50945 Amends district map 1960, changes zoning to "H" commercial district (Special)

50946 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

50947 Amends district map 1960, changes zoning to "A" single-family dwelling district (Special)

50948 Sale of property (Special)

50949 Authorizes conveyance of property, to Blanton Company, Inc. (Special)

50950 Magistrate court employee compensation and classification schedule (4.24.010)

50951 Coroner and morgue employee appointment and salaries, repeals Ord. 49947 (Repealed by 52744)

50952 Appropriation for Lambert-St. Louis Municipal Airport (Special)

50953 Authorizes contracts for improvement, Hall Street (Special)

50954 Adds § 832.031, 1960 Code, speed limits and expressways (Repealed by 57831)

50955 Pedestrian duties, repeals Ord. 50048 (Repealed by 57831)

50956 Vacates part Pine Boulevard, Cardinal Ave., alleys, block 1949 (Special)

50957 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

50958 Amends district map 1960, changes zoning to "J" industrial district (Special)

50959 Amends district map 1960, changes zoning to "B" two-family dwelling district (Special)

50960 Amends district map 1960, changes zoning to "F" local business district (Special)

50961 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

50962 Vacates Idaho Ave. (Special)

50963 Vacates Schiller Ave. (Special)

50964 Vacates portion lot 7, block 5107-W (Special)

50965 Authorizes granting easement to John U. Beckman (Special)

50966 Vacates part Oriole Ave., Gilmore Ave., alleys, blocks 5392 and 5353 (Special)

50967 Amends district map 1960, changes zoning to "J" industrial district (Special)

50968 Amends district map 1960, changes zoning to "G" commercial district (Special)

50969 Rubbish (Ch. 11.02)

50970 Authorizes contract with board of education for conveyance of property to be purchased by city (Special)

50971 Sale of property to county (Special)

50972 Repeals Ord. 50658 (Repealer)

50973 Authorizes contracts for alteration to water filter system at aquatic house at Zoological Park (Special)

50974 Authorizes contracts for incinerator for Zoological Park (Special)

50975 Authorizes contracts for various work at Zoological Park (Special)

50976 Amends Part 3, 1948 Code, changes zoning to "H" commercial district (Special)

50977 Amends district map 1960, changes zoning to "F" local business district (Special)

50978 Amends district map 1960, changes zoning to "J" industrial district (Special)

50979 Amends district map 1960, changes zoning to "H" commercial district (Special)

50980 Additional appropriation for probation department, juvenile division circuit court (Special)

50981 Amends § 912.050, 1960 Code, area regulation in "E" multiple-family dwelling district (Title 26)

50982 Relief of Oakland Medical Building, Inc. (Special)

50983 Sale of property (Special)

50984 Sale of property (Special)

50985 Sale of property (Special)

50986 Amends § 16.090, 1960 Code, copies of city journal (3.52.090)

50987 Authorizes contract with state highway commission for establishment of state highway (Special)

50988 Amends district map 1960, changes zoning to "J" industrial district (Special)

50989 Parking, Third Street (Not codified)

50990 Parking, Sixth Street (Not codified)

50991 Parking, Eighteenth Street (Not codified)

50992 Repeals Ord. 45085 (Repealer)

50993 Parking, Pine Street, repeals § 4(16), Ord. 47000 (Not codified)

50994 Stop intersection, Enright Ave. and Rosedale Ave. (Not codified)

50995 Amends § 1, Ord. 50388, parking, Miller Street (Repealed by 57831)

50996 Stop intersection, Clara Ave. and Cabanne Ave. (Not codified)

50997 Stop intersection, Clemens Ave. and Clara Ave. (Not codified)

50998 Stop intersection, Cates Ave. and Clara Ave. (Not codified)

50999 Stop intersection, Clemens Ave. and Rosedale Ave. (Not codified)

51000 Designates Broadway one-way street (Repealed by 52557)

51001 Designates Vemon Ave. one-way street (Repealed by 52808)

51002 Designates Chamberlain Ave. one-way street (Not codified)

51003 Parking, Second Street (Not codified)

51004 Parking, Market Street (Not codified)

51005 Parking, Fourteenth Street viaduct (Not codified)

51006 Parking, Park Ave. (Not codified)

51007 Repeals Ord. 49446 (Repealer)

51008 Parking, Park Ave. (Not codified)

51009 Designates Etzel Ave. one-way street (Not codified)

51010 Stop intersection, Clemens Ave. and Skinker Boulevard (Not codified)

51011 Amends § 1, Ord. 46445, Horton Place one-way street (Not codified)

51012	Repeals § 1759, Ch. 69, 1948 Code (Repealer)
51013	Parking, alley, block 205 (Not codified)
51014	Parking, Ohio Ave. (Not codified)
51015	Parking, Missouri Ave. (Not codified)
51016	Repeals Ord. 44560 (Repealer)
51017	Stop intersection, Papin Street and Eighteenth Street (Not codified)
51018	Parking, Delmar Boulevard (Repealed by 52292)
51019	Parking, Ohio Ave. (Not codified)
51020	Parking, Lesperance Street (Not codified)
51021	Parking, Lami Street (Not codified)
51022	Parking, Jefferson Ave., repeals Ord. 49475 (Not codified)
51023	Repeals Ord. 45570 (Repealer)
51024	Repeals Ord. 50391 (Repealer)
51025	Parking, McNair Ave. (Not codified)
51026	Stop intersection, Compton Ave. and Pestalozzi Street (Not codified)
51027	Parking, Lynch Street (Not codified)
51028	Prohibits commercial vehicles, various streets (Not codified)
51029	Parking, Des Peres Ave. (Not codified)
51030	Parking, Des Peres Ave. (Not codified)
51031	Parking, Hamilton Ave. (Not codified)
51032	Parking, Goodfellow Ave. (Not codified)
51033	Parking, Rosedale Ave. (Not codified)
51034	Approves development plan submitted by Transurban Redevelopment Corporation for blighted area (Special)
51035	Parking, Goofellow Ave. (Not codified)
51036	Parking, Rosedale Ave. (Not codified)
51037	Repeals Ord. 44701 (Repealer)
51038	Designates McPherson Ave. one-way street (Not codified)
51039	Parking, Gay Street (Not codified)
51040	Repeals line 38, page 1148, § 850.030, 1960 Code (Repealer)
51041	Repeals line 37, page 1151, lines 6 and 7, page 1156, line 4, page 1160, line 42, page 1161, § 850.030, 1960 Code (Repealer)
51042	Repeals line 1, page 1278, § 888.040, 1960 Code (Repealer)
51043	Parking, Sixth Street (Not codified)
51044	Parking, Eighth Street (Not codified)
51045	Designates alley, block 2281 one-way (Not codified)
51046	Amends § 887.030, 1960 Code, parking, Broadway (Not codified)
51047	Repeals line 38, page 1153, § 850.030, 1960 Code (Repealer)
51048	Stop intersection, Hickory Street and Eighteenth Street (Not codified)
51049	Designates Montana Street one-way street (Not codified)
51050	Designates Gasconade Street one-way street (Not codified)
51051	Designates Dewey Ave. one-way street (Not codified)
51052	Stop intersection, Potomac Street and Louisiana Ave. (Not codified)
51053	Parking, Michigan Ave. (Not codified)
51054	Parking, Virginia Ave. (Not codified)
51055	Amends § 850.020, 1960 Code, stop intersection, Idaho Ave. and Itaska Street (Not codified)
51056	Amends § 850.020, 1960 Code, stop intersection, Minnesota Ave. and Itaska Street (Not codified)
51057	Parking, Fillmore Street (Not codified)
51058	Repeals line 36, page 1161, § 850.030, 1960 Code (Repealer)
51059	Amends § 850.020, 1960 Code, stop intersection, Louisiana Ave. and Itaska Street (Not codified)
51060	Repeals line 13, page 1262, § 888.030, 1960 Code (Repealer)
51061	Parking, Oak Hill Ave. (Not codified)
51062	Parking, DeTonty Street (Not codified)
51063	Parking, Cleveland Ave., Thirty-ninth Street and Flad Ave. (Repealed by 52198)

51064	Parking, Castleman Ave. (Not codified)
51065	Parking, Arsenal Street (Not codified)
51066	Parking, Bell Ave. (Not codified)
51067	Directs issuance of bonds (Special)
51068	Appropriation for acquisition of property (Special)
51069	Authorizes contracts for construction of new Chronic liospital (Special)
51070	Authorizes contracts for street lighting (Special)
51071	Additional appropriation for construction of children's psychiatric guidance clinic (Special)
51072	Creates revolving fund for security deposits for city employee and police involved in vehicle accidents (Special)
51073	Amends § 7, Ord. 47360, traffic-control signals, Cass Ave. and Jefferson Ave. (Not codified)
51074	Amends § 1, Ord. 50402, parking, Park Ave. (Not codified)
51075	Stop intersection, Chamberlain Ave. and Clara Ave., repeals § 1(a)(30), Ord. 49095 (Not codified)
51076	Repeals Ord. 49474 (Repealer)
51077	Designates Howard Street one-way street (Not codified)
51078	Designates Suburban Ave. one-way street (Not codified)
51079	Designates Enright Ave. one-way street (Not codified)
51080	Repeals § 2098, Ch. 69, 1948 Code (Repealer)
51081	Parking, Miami Street (Not codified)
51082	Repeals § 2(a)(70), Ord. 49095 (Repealer)
51083	Designates Clemens Ave. one-way street (Not codified)
51084	Designailes Cates Ave. one-way street (Not codified)
51085	Designates Cherokee Street one-way street (Not codified)
51086	Fire lane, Howard Street (Not codified)
51087	Parking, Tholozan Ave. (Not codified)
51088	Parking, Compton Ave. (Not codified)
51089	Designates Bartmer Ave. one-way street (Repealed by 51929)
51090	Parking, Barton Street (Not codified)
51091	Repeals Ord. 45217 (Repealer)
51092	Stop intersection, Shreve Ave. and Bircher Boulevard, repeals Ord. 45540 (Not codified)
51093	Repeals § 1983, Ch. 69, 1948 Code (Repealer)
51094	Parking, Outer Roadway J.A. (Not codified)
51095	Parking, Canaan Ave. (Not codified)
51096	Parking, Salisbury Street (Not codified)
51097	Designates Eiler Street one-way street (Not codified)
51098	Parking, Gratiot Ave. (Not codified)
51099	Parking, Delmar Boulevard (Not codified)
51100	Stop intersection, Wren Ave. and Theodore Ave. (Not codified)
51101	Designates Eleventh Street one-way street (Not codified)
51102	Designates Ninth Street one-way street (Not codified)
51103	Parking, Dock Street (Not codified)
51104	Parking, Twenty-fifth Street (Not codified)
51105	Fire lane, Gano Ave. (Not codified)
51106	Parking, Pennsylvania Ave. (Not codified)
51107	Parking, Manchester Ave. (Not codified)
51108	Fire lane, Motard Ave. (Not codified)
51109	Repeals line 32, page 1215, § 887.010, 1960 Code (Repealer)
51110	Repeals Ord. 50524 (Repealer)
51111	Parking, Maple Ave. (Not codified)
51112	Parking, Fountain Ave. (Not codified)
51113	Stop intersection, Belt Ave. and Pershing Ave. (Not codified)
51114	Amends § 1, Ord. 50379, parking, York Ave. (Not codified)
51115	Parking, Lindell Boulevard (Not codified)

51116	Parking, Pelham Ave. (Not codified)
51117	Parking, Lilian Ave. (Not codified)
51118	Amends § 888.030, 1960 Code, parking, Natural Bridge Ave. (Repealed by 52619)
51119	Parking, Union Boulevard (Not codified)
51120	Parking, West Florissant Ave. (Not codified)
51121	Repeals line 19, page 1160, § 850.030, 1960 Code (Repealer)
51122	Amends § 851.010, 1960 Code, Farlin Ave. one-way street (Repealed by 51534)
51123	Repeals line 32, page 1162, § 850.030, 1960 Code (Repealer)
51124	Parking, Eugene Ave. (Not codified)
51125	Additional appropriation for construction of building and garage for traffic division (Special)
51126	Amends § 12, Ord. 49771, division of parks (22.08.010)
51127	Authorizes contracts for development on unimproved park areas (Special)
51128	Vacates Loughborough Ave. (Special)
51129	Vacates alley and part Walnut Street (Special)
51130	Vacates alley and part Cardinal Ave. (Special)
51131	Amends §§ 307.080, 307.090 and 307.100, adds §§ 307.041, 307.091—307.098, 1960 Code, taxicabs (Repealed by 51131)
51132	Vacates Natural Bridge Ave. and alley (Special)
51133	Sale of property (Special)
51134	Amends § 887.040, 1960 Code, parking, Union Boulevard (Not codified)
51135	Yield right-of-way, Riverview Boulevard cutoff at Riverview Boulevard (Not codified)
51136	Repeals Ord. 48980 (Repealer)
51137	Repeals Ord. 46857 (Repealer)
51138	Parking, McArthur Ave. (Not codified)
51139	Parking, Brennen Ave. (Not codified)
51140	Designates Era Ave. one-way street (Not codified)
51141	Stop intersection, Thekla Ave. and Genevieve Ave. (Not codified)
51142	Parking, Lindell Boulevard (Not codified)
51143	Repeals line 12, page 1153, line 33, page 1162, § 850.030, 1960 Code (Repealer)
51144	Repeals line 22, page 1148, line 18, page 1151, § 850.030, 11960 Code
51145	Authorizes contracts for improvement, Spring Ave. (Special)
51146	Appropriation for acquiring rights-of-way for expressways (Special)
51147	Authorizes contracts for improvement of Rock Island Highway (Special)
51148	Stop intersection, Davis Street and Ivory Street (Not codified)
51149	Repeals line 32, page 1151, § 850.030, 1960 Code (Repealer)
51150	Prohibits commercial vehicles, Elmbank Ave. (Not codified)
51151	Establishes north outer road of Mark Twain Expressway as Bircher Boulevard, designates Bircher Boulevard one-way street (Not codified)
51152	Stop intersection, Lincoln Ave. and Warne Ave. (Not codified)
51153	Repeals line 44, page 1140, § 850.020, 1960 Code (Repealer)
51154	Stop intersection, Marcus Ave. and Maffitt Ave. (Not codified)
51155	Stop intersection, Cote Brilliante Ave. and Spring Ave. (Not codified)
51156	Stop intersection, Kennerly Ave. and Whittier Ave. (Not codified)
51157	Stop intersection, Newstead Ave. and Newstead cutoff and Aldine Ave. (Not codified)
51158	Parking, Berthold Ave. (Not codified)
51159	Parking, Macklind Ave. (Not codified)
51160	Parking, East Road (Not codified)
51161	Parking, Berthold Ave. (Not codified)
51162	Parking, Clifton Ave. (Not codified)

51163	Prohibits commercial vehicles, Palm Street (Not codified)
51164	Parking, Spruce Street (Not codified)
51165	Repeals line 2, page 1228, § 888.030, 1960 Code (Repealer)
51166	Amends § 880.030, 1960 Code, parking, Delmar Boulevard (Not codified)
51167	Repeals line 37, page 1160, § 850.030, 1960 Code (Repealer)
51168	Amends § 1, Ord. 50664, parking, Delmar Boulevard (Not codified)
51169	Repeals line 25, page 1167, § 850.040, 1960 Code (Repealer)
51170	Repeals line 41, page 1132, § 850.020, 1960 Code (Repealer)
51171	Parking, Third Street (Not codified)
51172	Parking, Bircher Boulevard (Not codified)
51173	Traffic-control signals, Broadway and Riverview Boulevard (Not codified)
51174	Parking, Chouteau Ave. (Not codified)
51175	Designates alley, block 441 one-way (Not codified)
51176	Designates Wilmington Ave. one-way street (Not codified)
51177	Traffic-control signals, Broadway and Nebraska Ave. (Not codified)
51178	Prohibits commercial vehicles, Shaw Ave. (Not codified)
51179	Prohibits commercial vehicles, Lilly Ave. (Not codified)
51180	Parking, Columbia Ave. (Not codified)
51181	Traffic-control signals, Clayton Ave., Oakland Ave. and Skinker Boulevard (Not codified)
51182	Parking, Easton Ave. (Not codified)
51183	Prohibits commercial vehicles, Arlington Ave. (Not codified)
51184	Prohibits commercial vehicles, Belt Ave. (Not codified)
51185	Repeals line 14, page 1162, § 850.040, 1960 Code (Repealer)
51186	Amends § 888.040, 1960 Code, parking, Maryland Ave. (Not codified)
51187	Amends § 888.040, 1960 Code, parking, Goodfellow Boulevard (Not codified)
51188	Repeals line 21, page 1151, § 850.030, 1960 Code (Repealer)
51189	Parking, Grace Ave. (Not codified)
51190	Stop intersection, Lansdowne Ave. and Wabash Ave. (Not codified)
51191	Parking, Gravois Ave. (Not codified)
51192	Parking, Dresden Ave. (Not codified)
51193	Parking, Meramec Street, repeals Ord. 50628 (Not codified)
51194	Repeals line 11, page 1161, § 850.030, 1960 Code (Repealer)
51195	Repeals line 5, page 1074, § 850.020, 1960 Code (Repealer)
51196	Repeals line 6, page 1074, § 850.020, 1960 Code (Repealer)
51197	Stop intersection, Baden Ave. and Pelham Ave. (Not codified)
51198	Regulates traffic flow, Gravois Ave., repeals Ord. 48329 (Repealed by 57831)
51199	Designates Parker Ave. one-way street (Not codified)
51200	Parking, Shenandoah Ave. (Not codified)
51201	Repeals line 28, page I 1 64, line 45, page 1167, § 850.040, 1960 Code (Repealer)
51202	Repeals line 38, page 1148, lines 11 and 20, page 1159, line 23, page 1160, § 850.030, 1960 Code (Repealer)
51203	Parking, Seventh Street (Not codified)
51204	Parking, Chippewa Street (Not codified)
51205	Amends § 2309.1 and note "e" of table 6, Vol. 2, 1960 Code, area of limitations (Repealed by 56797)
51206	Authorizes acquisition of land and houses in neighborhood rehabilitation project areas as demonstrator, creates revolving fund "Rehabilitation Demonstration House Fund" (Ch. 3.86)
51207	Appropriation for rehabilitation demonstration house fund (Special)
51208	Parking, Duncan Ave. (Not codified)

51209	Parking, Audubon Ave. (Not codified)
51210	Parking, Tholozan Ave., repeals Ord. 50716 (Not codified)
51211	Parking, Jefferson Ave. (Not codified)
51212	Designates alley, block 1106 one-way (Not codified)
51213	Parking, North Florissant Ave. (Not codified)
51214	Yield right-of-way, Jefferson Ave. and Parnell Street (Not codified)
51215	Fire lane, Garrison Ave. (Not codified)
51216	Parking, Jefferson Ave. (Not codified)
51217	Parking, Leona Street (Not codified)
51218	Repeals line 25, page 1215, § 887.010, 1960 Code (Repealer)
51219	Parking, Jefferson Ave. (Not codified)
51220	Repeals § 3(2), Ord. 48333 (Repealer)
51221	Amends § 887.040, 1960 Code, parking, Jefferson Ave. (Not codified)
51222	Amends § 887.040, 1960 Code, parking, Jefferson Ave. (Not codified)
51223	Repeals line 2, page 1254, § 888.020, 1960 Code (Repealer)
51224	Repeals line 37, page 1157, § 850.030, 1960 Code (Repealer)
51225	Repeals line 30, page 1153, § 850-030, 1960 Code (Repealer)
51226	Repeals line 31, page 1153, § 850.030, 1960 Code (Repealer)
51227	Parking, Hebert Street (Not codified)
51228	Stop intersection, Wright Street and Hadley Street (Not codified)
51229	Parking, Island (Not codified)
51230	Amends district map 1960, changes zoning to "J" industrial district (Special)
51231	Authorizes agreement with Mississippi River Transmission Corp. easement for underground gas pipe (Special)
51232	Amends §§ 258.020, 258.060 and 258.070, 1960 Code, house numbering (20.16.020, 20.16.060, 20.16.070)
51233	Amends § 14, Ord. 46687, vehicle speed (Repealed by 57831)
51234	Designates major streets (Not codified)
51235	Amends § 608.080, 1960 Code, points which buses transporting to and from city may receive and discharge passengers (8.62.280)
51236	Fire lane, Crittenden Street (Not codified)
51237	Fire lane, Enright Ave. (Not codified)
51238	Vacates Twenty-first Street and alley, block 1165 (Special)
51239	Vacates parts May Street, East Second Street and alley, block 2450 (Special)
51240	Conditional vacation, Bartle Ave. (Special)
51241	Parking, Jefferson Ave., repeals Ord. 41878 (Not codified)
51242	Repeals Ord. 44896 (Repealer)
51243	Parking, Minnesota Ave. (Not codified)
51244	Amends § 8(6), Ord. 46525, parking, Garrison Ave. (Not codified)
51245	Designates Terry Ave. one-way street (Not codified)
51246	Stop intersection, Blackstone Ave. and Etzel Ave. (Not codified)
51247	Stop intersection, Wells Ave. and Blackstone Ave., repeals Ord. 44493 (Not codified)
51248	Designates Cote Brilliante Ave. one-way street (Not codified)
51249	Repeals § 1768, Ch. 69, 1948 Code (Repealer)
51250	Amends § 4(16), Ord. 46525, parking, Garrison Ave. (Not codified)
51251	Parking, Eighth Street (Not codified)
51252	Amends § 1(8) and § 4(2), Ord. 46525, parking, Cardinal Ave. (Not codified)
51253	Parking, Eighteenth Street (Not codified)
51254	Parking, Delmar Boulevard (Not codified)
51255	Parking, Walnut Street, repeals Ord. 41337 (Not codified)
51256	Parking, Eighth Street (Not codified)
51257	Parking, Vandeventer Ave. (Not codified)

51258	Designates alley, block 5112B one-way (Not codified)
51259	Parking, St. Bernard's Lane (Not codified)
51260	Stop intersection, Clara Ave. and St. Louis Ave., repeals Ord. 42823 (Not codified)
51261	Prohibits commercial vehicles, Hebert Street (Not codified)
51262	Parking, Wichita Ave. (Not codified)
51263	Repeals line 20, page 1281, § 888.040, 1960 Code (Repealer)
51264	Amends § 887.030, 1960 Code, parking, Ninth Street (Not codified)
51265	Repeals line 34, page 1159, § 850.030, 1960 Code (Repealer)
51266	Bicycles, horses or pedestrians, Mark Twain Expressway (Repealed by 57831)
51267	Amends § 887.030, 1960 Code, parking, Garrison Ave. (Not codified)
51268	Amends § 888.030, 1960 Code, parking, Cardinal Ave. (Not codified)
51269	Parking, Johnson Street (Not codified)
51270	Parking, Belmont Ave. (Not codified)
51271	Parking, Walnut Street (Not codified)
51272	Repeals line 1, page 1262, § 888.030, 1960 Code (Repealer)
51273	Repeals line 10, 11, 19 and 20, page 1225, § 887.030, 1960 Code (Repealer)
51274	Parking, Broadway (Repealed by 52263)
51275	Parking, Belmont Street (Not codified)
51276	Amends § 887.030, 1960 Code, parking, Fourth Street (Not codified)
51277	Designates Farrar Street one-way street (Not codified)
51278	Parking, Benton Street (Not codified)
51279	Traffic-control signals, St. Louis Ave. and Vandeventer Ave. (Not codified)
51280	Traffic-control signals, Newstead Ave. and St. Louis Ave. (Not codified)
51281	Traffic-control signals, Jefferson Ave. and Shenandoah Ave. (Not codified)
51282	Repeals line 22, page 1150, § 850.030, 1960 Code (Repealer)
51283	Parking, Schollmeyer Ave. (Not codified)
51284	Parking, Kingshighway Boulevard (Not codified)
51285	Parking, Loughborough Ave. (Not codified)
51286	Stop intersection, Robert Ave. and Sharp Ave.
51287	Repeals line 9, page 1150, § 850.030, 1960 Code (Repealer)
51288	Regulates wreckers (Ch. 8.110)
51289	Amends § 888.030, parking, Alabama Ave. (Not codified)
51290	Parking, Hampton Ave. (Not codified)
51291	Stop intersection, Clifton Ave. and Eichelberger Street (Not codified)
51292	Repeals line 10, page 1150, § 850.030, 1960 Code (Repealer)
51293	Stop intersection, Davis Street and Ivory Street (Not codified)
51294	Parking, Meramec Street (Not codified)
51295	Parking, Hartford Street (Not codified)
51296	Parking, Fyler Ave. (Not codified)
51297	Stop intersection, Connecticut Street and Bent Ave. (Not codified)
51298	Traffic-control signals, Forest Park Ave. and Newstead Ave. (Not codified)
51299	Traffic-control signals, Franklin Ave. and Grand Ave. (Not codified)
51300	Traffic-control signals, Cote Brilliante Ave. and Kingshighway Boulevard (Not codified)
51301	Parking, Carter Ave. (Not codified)
51302	Repeals line 18, page 1276, § 888.040, 1960 Code (Repealer)
51303	Parking, Hodiamont Ave. (Not codified)
51304	Repeals Ord. 50834 (Repealer)
51305	Designates Semple Ave. one-way street (Repealed by 52212)
51306	Parking, Fyler Ave., repeals Ord. 50760 (Not codified)
51307	Traffic-control signals, Lansdowne Ave. and Wabash Ave. (Not codified)

51308	Parking, Chippewa Street (Not codified)
51309	Amends § 887.040, 1960 Code, parking, Chippewa Street (Not codified)
51310	Amends § 887.040, 1960 Code, parking, Chippewa Street (Not codified)
51311	Traffic-control signals, Forest Park Ave. and Euclid Ave., Forest Park Ave. and Taylor Ave. (Not codified)
51312	Traffic-control signals, DeBaliviere Ave. and Forest Park Parkway (Not codified)
51313	Parking, San Francisco Ave. (Not codified)
51314	Parking, Union Boulevard (Not codified)
51315	Parking, Brennan Ave. (Not codified)
51316	Parking, Hamilton Ave. (Not codified)
51317	Parking, Bircher Boulevard (Not codified)
51318	Parking, Darby Ave. (Not codified)
51319	Prohibits commercial vehicles, Kennerly Ave. (Not codified)
51320	Prohibits commercial vehicles, Hodiamont Ave. (Not codified)
51321	Amends § 851.010, 1960 Code, Oakley Place one-way street (Not codified)
51322	Repeals line 19, page 1153, § 850.030, 1960 Code (Repealer)
51323	Repeals line 21, page 1153, § 850.030, 1960 Code (Repealer)
51324	Playground stop, Goodfellow Boulevard and Kennerly Ave. (Not codified)
51325	Repeals line 7, page 1147, § 850.030, 1960 Code (Repealer)
51326	Repeals line 32, page 1149, § 850.030, 1960 Code (Repealer)
51327	Appropriations for current expenses (Special)
51328	Adds §§ 149.010, 149.015, 1960 Code, tax levies, repeals §§ 149.010, 150.010, 1960 Code (5.26.010, 5.26.020)
51329	Amends § 149.020, 1960 Code, tax levy (5.26.030)
51330	Amends § 149.030, 1960 Code, tax levy (5.26.040)
51331	Amends § 149.040,1960 Code, tax levy (5.26.060)
51332	Amends § 3, Ord. 50955, pedestrians (Repealed by 57831)
51333	Amends § 226.010, 1960 Code, zoological park, repeals Ord. 43621 (22.28.010)
51334	Authorizes contracts for tree survey and forestry work at various rehabilitation areas (Special)
51335	Credit toward service of sentence in workhouse (Ch. 16.28)
51336	Sale of property, Forest Park and block 2022 (Special)
51337	Additional appropriation for acquisition of land for public garage (Special)
51338	Authorizes contract with State Highway Commission for establishment of state highway (Special)
51339	Authorizes contracts for reconstruction of sewers in Washington Square (Special)
51340	Repeals line 39, page 1157, § 850.030, 1960 Code (Repealer)
51341	Partial improvement, Potomac Street (Special)
51342	Authorizes issuance of bonds (Special)
51343	Creates division of community services in department of welfare (Not codified)
51344	Amends § 2620.1, Vol. 2, 1960 Code, smoke proof towers (Repealed by 56797)
51345	Amends § 2611.1, Vol. 2, 1960 Code, exitways (Repealed by 56797)
51346	Vacates Mullanphy Street (Special)
51347	Establishes Marceau Street (Special)
51348	Improvement, Adelaide Ave. (Special)
51349	Traffic-control signals, Kingshighway Boulevard and Maffitt Place, Marcus Ave. and St. Louis Ave., Maffitt Ave. and Union Boulevard (Not codified)
51350	Prohibits commercial vehicles, Palm Street (Not codified)
51351	Parking, Meramec Street, repeals § 2, Ord. 51193 (Not codified)

51352	Parking, Potomac Street (Not codified)
51353	Prohibits commercial vehicles, Oleatha Ave. (Not codified)
51354	Parking, Sutherland Ave. (Not codified)
51355	Yield right-of-way, Childress Ave. at Lindenwood Place (Not codified)
51356	Prohibits commercial vehicles, Newport Ave. (Not codified)
51357	Amends § 1, Ord. 51130, vacates alley, block 2243, part Cardinal Ave., alley (Special)
51358	Parking, Forest Park, repeals Ord. 50813 (17.70.010, 17.70.020)
51359	Unlawful to drive with defective glass in vehicle (Repealed by 57831)
51360	Establishes land as part of Mississippi River flood control protection project (Special)
51361	Sale of property (Special)
51362	Sale of property (Special)
51363	Parking, commercial vehicles in "A", "B", "C", "D" and "E" use zoning districts (Repealed by 57831)
51364	Parking, Tenth Street (Not codified)
51365	Parking, Clark Ave. (Not codified)
51366	Parking, Tenth Street (Not codified)
51367	Ratifies amendment to grant agreement for project No. 9-23-034-510 (Special)
51368	Appropriation for law department employees in condemnation division (Special)
51369	Sidewalk construction, Loughborough Ave. (Special)
51370	Alley improvement (Special)
51371	Alley improvement (Special)
51372	Stop intersection, Louisiana Ave. and Osage Street (Not codified)
51373	Amends § 1, Ord. 50956, vacates part Pine Boulevard, Cardinal Ave. and alleys (Special)
51374	Amends district map 1960, changes zoning to "J" industrial district (Special)
51375	Appropriation for office building and study home for children's services (Special)
51376	Amends §§ 753.010—753.060, adds § 753.070, amends Chs. 370, 371, 372, 373, 374, 375, 376, 377 and 378, 1960 Code, alcoholic beverages (Title 14, Ch. 15.116)
51377	Authorizes contract for plans for construction of greenhouses in Forest Park (Special)
51378	Authorizes issuance of bonds (Special)
51379	Appropriation for acquisition of property (Special)
51380	Authorizes contract with State Highway Commission for state highway (Special)
51381	Authorizes contracts for construction of fire station (Special)
51382	Repeals Ord. 48900 (Repealer)
51383	Declares result of special election (Special)
51384	Amends § 428.010, 1960 Code, permits for exhuming body (11.62.210)
51385	Amends § 98, Ord. 50851, treasury division employee appointment and salaries (4.26.010, 4.26.020)
51386	Changes Trudeau Street to Shenandoah Ave. (Special)
51387	Establishes land as part of Mississippi River flood control protection project (Special)
51388	Sale of property (Special)
51389	Declares result of special election (Special)
51390	Declares result of special election (Special)
51391	Amends Chs. 290, 291, 293, 294, 295, 296, 297 and 298, 1960 Code, wharf and harbor regulations (Title 21)
51392	Authorizes contracts for relocation of road at Koch Hospital power plant (Special)
51393	Authorizes management survey of hospital division operations and accounting survey in finance department (Special)

51394	Authorizes contract with State Highway Commission for maintenance of Mark Twain Expressway (Special)
51395	Appropriation for contract for construction of traffic regulation devices (Special)
51396	Vacates part Sulphur Ave. (Special)
51397	Vacates part Carrie Ave. (Special)
51398	Adds §§ 280.010, 280.020, 280.030, 280.040, 280.050, 280.080, 280.090, 280.100, 281.010, 281.020, 281.030, 281.040, 281.050, 281.060, 281.070, 281.080, 281.090, 281.110, 281.120, 281.130, 281.140 and 281.150, collection of garbage and refuse, repeals §§ 280.010, 280.020, 280.030, 280.040, 280.050, 281.010, 281.020, 281.030, 281.040, 281.050, 281.060, 281.070, 281.080, 281.090, 282.010, 282.020, 282.030, 282.040, 282.120, 282.130, 284.010, 284.020, 284.030, 1960 Code (Ch. 11.02, Parts I and II)
51399	Repeals Ord. 50920 (Repealer)
51400	Stop intersection, Botanical Ave. and Thurman Ave. (Not codified)
51401	Parking, Kingshighway Boulevard, repeals lines 12 and 15, page 1242, § 887.040, 1960 Code (Not codified)
51402	Stop intersection, Burd Ave. and Wells Ave. (Not codified)
51403	Parking, Kingshighway Boulevard, repeals lines 13 and 15, page 1242, § 887.040, 1960 Code (Not codified)
51404	Stop intersection, Tholozan Ave., and Brannon Ave. (Not codified)
51405	Stop intersection, Castleman Ave. and Thurman Ave. (Not codified)
51406	Parking, Klemm Street (Not codified)
51407	Parking, Winnebago Street (Not codified)
51408	Designates Sulphur Ave. one-way street (Not codified)
51409	Repeals line 40, page 1028, line 4, page 1120, § 850.020, 1960 Code (Repealer)
51410	Repeals line 35, page 1134, § 850.020, 1960 Code (Repealer)
51411	Parking, Nottingham Ave. (Not codified)
51412	Amends § 851.010, 1960 Code, designates Murdoch Ave. one-way street (Not codified)
51413	Parking, Walnut Street (Not codified)
51414	Parking, Linden Street (Not codified).
51415	Repeals line 4, page 1210, § 887.010, 1960 Code (Repealer)
51416	Traffic-control signals, Broadway and Delmar Boulevard, Delmar Boulevard and Ninth Street (Not codified)
51417	Regulates traffic, Third Street (Not codified)
51418	Authorizes contracts for construction of sewers at Koch Hospital (Special)
51419	Authorizes contracts for planning for construction of Victor Street relief sewer (Special)
51420	Authorizes contracts for construction of portion of Compton Ave. relief sewer (Special)
51421	Vacates parts, various streets and alleys (Special)
51422	Vacates parts, Jefferson Ave. and Ohio Ave. (Special)
51423	Appropriation for acquisition of property for widening Jefferson Ave. (Special)
51424	Conditional vacation, parts Abner Place, William Place, alleys in blocks 4519A, 4519B and 5248N (Special)
51425	Abate dangerous conditions in streets and alleys caused by defective private sewer laterals (Ch. 20.50)
51426	Appropriation for private sewer repair fund (Special)
51427	Amends § 432.020, 1960 Code, cemeteries (11.62.280)
51428	Appropriation for construction at Lambert-St. Louis Municipal Airport (Special)
51429	Appropriation for construction at Lambert-St. Louis Municipal Airport (Special)

51430	Authorizes contracts for rehabilitation of Douglas MacArthur Bridge (Special)
51431	Sale of property, block 4316 and out lot 115 and 116, purchase of property, out lot 116 (Special)
51432	Vacates alley (Special)
51433	Vacates alley (Special)
51434	Conditional vacation, parts Way Street and Hampton Ave. (Special)
51435	Vacates part Second Street (Special)
51436	Vacates alley (Special)
51437	Vacates First Street (Special)
51438	Vacates Second Street (Special)
51439	Vacates Kemper Ave. (Special)
51440	Amends § 1, Ord. 48000, § 2, Ord. 47551, blighted areas (Special)
51441	Describes blighted areas (Special)
51442	Amends Ord. 50033, amendatory agreement with Mansion House Center Redevelopment Corporation (Special)
51443	Amends district map 1960, changes zoning to "J" industrial district (Special)
51444	Repeals § 10(b), Ord. 51288 (Repealer)
51445	Adds § 9(A), Ord. 51288, wreckers (8.110.210)
51446	Amends § 29.390, 1960 Code, property tax (11.06.370)
51447	Relief for Giudicy Marble and Terrazzo and Tile Co. (Special)
51448	Amends district map 1960, changes zoning to "F" local business district (Special)
51449	Repeals Ord. 50759 (Repealer)
51450	Parking, Fassen Street (Not codified)
51451	Stop intersection, Fassen Street and Michigan Ave. (Not codified)
51452	Parking, Ninth Street (Not codified)
51453	Stop intersection, Hall Street and East Grand Ave. (Not codified)
51455	Parking, Natural Bridge Ave. (Not codified)
51456	Stop intersection, Branch Street and Blair Ave. (Not codified)
51457	Parking, Bingham Ave., repeals Ord. 49674 (Not codified)
51458	Repeals line 24, page 1074, § 850.020, 1960 Code (Repealer)
51459	Repeals line 14, page 1134, § 850.020, 1960 Code (Repealer)
51460	Repeals line 15, page 1086, § 850.020, 1960 Code (Repealer)
51461	School stop, Tenth Street and Biddle Street (Not codified)
51462	School stop, Tenth Street and O'Fallon Street (Repealed by 53156)
51463	Repeals line 7, page 1 149, lines 11 and 13, page 1157, § 850.030, 1960 Code (Repealer)
51464	Parking, Reilly Ave. (Not codified)
51465	Parking, Michigan Ave. (Not codified)
51466	Prohibits commercial vehicles, Ellenwood Ave. (Not codified)
51467	Repeals line 24, page 1087, § 850.020, 1960 Code (Repealer)
51468	Amends § 887.030, 1960 Code, parking, East Grand Ave. (Not codified)
51469	Parking, Ninth Street (Not codified)
51470	Designates McKinnley Bridge cutoff one-way street (Not codified)
51471	Parking, Davis Street (Not codified)
51472	Amends § 887.010, parking, Bellerive Boulevard (Repealed by 52672)
51473	Prohibits commercial vehicles, Hoffman Ave. (Not codified)
51474	Parking, Hartford Street (Not codified)
51475	Parking, Scanlan Ave. (Not codified)
51476	Designates Carter Ave. cutoff one-way street (Not codified)
51477	Parking, Mallinckrodt Street, repeals Ord. 50416 (Not codified)
51478	Prohibits commercial vehicles, Doddridge Street, Gimblin Street, Bittner Street, Thrush Ave., Ponce Ave., and Christian Ave. (Not codified)
51479	Vacates Scott Ave. (Special)
51480	Vacates part Davison Ave. (Special)

51481 Parking, Washington Square Park, repeals Ord. 48674 (Repealed by 52108)

51482 School stop, Union Boulevard and Harney Ave. (Not codified)

51483 Amends § 2, Ord. 47146, parking, Lindell Boulevard (Not codified)

51484 Parking, West Papin Street (Not codified)

51485 Parking, Laclede Ave. (Not codified)

51486 Parking, Spring Ave. (Not codified)

51487 Parking, Newstead Ave. (Not codified)

51488 Parking, Lindell Boulevard (Not codified)

51489 Parking, Forest Park Ave., repeals Ord. 50382 (Repealed by 52488)

51490 Designates Maple Ave. one-way street, repeals Ord. 50538 (Not codified)

51491 Amends § 887.010, 1960 Code, parking, Washington Ave. (Not codified)

51492 Repeals Ord. 47382 (Repealer)

51493 Parking, Papin Street (Not codified)

51494 Repeals line 12, page 1170, § 850.060, 1960 Code (Repealer)

51495 Stop intersection, Westminster Place and Boyle Ave. (Not codified)

51496 Parking, Marconi Ave. (Not codified)

51497 Parking, Southwest Ave. (Not codified)

51498 Parking, Plateau Ave. (Not codified)

51499 Amends § 888.030, 1960 Code, parking, Caroline Street (Not codified)

51500 Repeals line 11, page 1136, § 850.020, 1960 Code (Repealer)

51501 Parking, Hereford Street (Not codified)

51502 Parking, Vandeventer Ave. (Not codified)

51503 Repeals line 19, page 1085, § 85.020, 1960 Code (Repealer)

51504 Amends district map 1960, changes zoning to "G" commercial district (Special)

51505 Amends district map 1960, changes zoning to "E" multiple-family dwelling district (Special)

51506 Sale of slingshots (15.134.040)

51507 Amends § 754.030, 1960 Code, sale of certain weapons (15.134.030)

51508 Authorizes contracts for rehabilitation of various bridges (Special)

51509 Sale of property (Special)

51510 Amends § 7, Ord. 51288, wreckers (8.110.120)

51511 Amends § 1(f), Ord. 51288, wreckers (8.110.010)

51512 Prohibits discriminatory practices, establishes fair employment practices division (Repealed by 51617, 57173)

51513 Amends Part 3, 1948 Code, changes zoning to "F" local business district (Special)

51514 Prohibts release of memoranda or records of arrests (3.12.040—3.12.060)

51515 Purchase of land, block 4222-E for city workhouse (Special)

51516 Authorizes contracts for forestry work (Special)

51517 Vacates alley (Special)

51518 Vacates alley (Special)

51519 Leasing public park for private club use (Ch. 22.32)

51520 Sale of property (Special)

51521 Vacates alley (Special)

51522 Vacates parts of streets and alleys in block 742 (Special)

51523 Vacates part of alley (Special)

51524 Conditional alley vacation (Special)

51525 Issuance of bonds (Special)

51526 Authorizes contracts for planning and construction of gymnasium at Missouri Hills (Special)

51527 Authorizes contracts for planning and construction of juvenile court and detention home (Special)

51528 Authorizes contracts for planning and construction of juvenile court and detention home (Special)

51529 Used car sales (Repealed by 51745)

51530 Repeals line 19, page 1088, line 36, page 1098, § 850.020, 1960 Code (Repealer)

51531 Repeals lines 9 and 10, page 1204, § 886.010, 1960 Code (Repealer)

51532 Stop intersection, Von Phul Street and Adelaide Ave. (Not codified)

51533 Stop intersection, Genevieve Ave. and Theodore Ave. (Not codified)

51534 Designates Farlin Ave. one-way street, repeals Ord. 51122 (Not codified)

51535 Stop intersection, Lexington Ave. and Cora Ave. (Not codified)

51536 Repeals lines 24 and 25, page 1275, § 888.040, 1960 Code (Repealer)

51537 Amends § 887.040, parking, Euclid Ave. (Not codified)

51538 Repeals line 34, page 1098, line 19, page 1109, § 850.020, 1960 Code (Repealer)

51539 Repeals line 11, page 1216, § 887.010, 1960 Code (Repealer)

51540 Parking, Palm Street (Not codified)

51541 Parking, Newstead Ave., repeals Ord. 50756 and Ord. 50341 (Not codified)

51542 Parking, McArthur Ave. (Not codified)

51543 Parking, Goodfellow Ave. (Not codified)

51544 Stop intersection, Algernon Street and Adelaide Ave. (Not codified)

51545 Parking, Jefferson Ave. (Not codified)

51546 Stop intersection, Conde Street and Adelaide Ave. (Not codified)

51547 Stop intersection, Zealand Street and Adelaide Ave. (Not codified)

51548 Stop intersection, Grant Street and Adelaide Ave. (Not codified)

51549 Parking, West Florissant Ave., repeals Ord. 48692 (Not codified)

51550 Yield right-of-way, Hall Street at Riverview Boulevard (Not codified)

51551 Repeals line 24, page 1153, § 850.030, 1960 Code (Repealer)

51552 Repeals Ord. 51203 (Repealer)

51553 Parking, Palm Street (Not codified)

51554 Parking, Seventh Street (Not codified)

51555 Parking, Eichelberger Street (Not codified)

51556 Parking, Loughborough Ave. (Not codified)

51557 Repeals line 1, page 1235, § 887.040, 1960 Code (Repealer)

51558 Amends § 888.010, 1960 Code, parking, Hebert Street (Not codified)

51559 Amends § 887.030, 1960 Code, parking, Hadley Street (Not codified)

51560 Parking, Russell Boulevard (Not codified)

51561 Repeals Ord. 49879 (Repealer)

51562 Parking, Kingshighway Boulevard (Not codified)

51563 Parking, Amelia Ave. (Not codified)

51564 Repeals line 28, page 1175, § 851.010, 1960 Code (Repealer)

51565 Designates alley, block 1138 one-way (Not codified)

51566 Stop intersection, Oregon Ave. and Itaska Street (Repealed by 52179)

51567 Stop intersection, Tesson Street and Michigan Ave. (Not codified)

51568 Designates Bancroft Ave. one-way street (Not codified)

51569 Parking, Macklind Ave. (Not codified)

51570 Designates Sutherland Ave. one-way street (Not codified)

51571 Parking, Tamm Ave. (Not codified)

51572 Repeals line 23, page 1153, § 850.030, 1960 Code (Repealer)

51573 Repeals line 32, page 1160, § 839,040, 1960 Code (Repealer)

51574 Repeals line 33, page 1175, § 851.010, 1960 Code (Repealer)

51575 Stop intersection, Delor Street and Wherry Ave. (Not codified)

51576 Amends § 1, Ord. 50326, parking, Market Street (Not codified)

51577 Repeals line 6, page 1261, § 888.030, 1960 Code (Repealer)

51578 Amends § 887.040, 1960 Code, parking, Thirteenth Street (Not codified)

51579 Amends § 887.040, 1960 Code, parking, Market Street (Not codified)

51580	Amends § 887.040, parking, Market Street (Not codified)
51581	Repeals Ord. 49273 (Repealer)
51582	Amends § 887.040, 1960 Code, parking, Taylor Ave. (Not codified)
51583	Repeals line 40, page 1160, § 850.030, 1960 Code (Repealer)
51584	Stop intersection, Howard Street and Tenth Street (Not codified)
51585	Stop intersection, Howard Street and Eleventh Street (Not codified)
51586	Stop intersection, Ivanhoe Ave. and Lindenwood Place (Not codified)
51587	Yield right-of-way, Parnell Street at Jefferson Ave. (Not codified)
51588	Parking, Jefferson Ave. (Not codified)
51589	Parking, Twenty-first Street and Rauschenbach Ave., repeals Ord. 49765 (Repealed by 52484)
51590	Amends § 888.040, 1960 Code, parking, Wighers Ave. (Not codified)
51591	Repeals line 35, page 1163, line 3, page 1166, § 850.040, 1960 Code (Repealer)
51592	Repeals line 2, page 1163, line 24, page 1167, § 850.040, 1960 Code (Repealer)
51593	Parking, Second Street (Not codified)
51594	Repeals line 24, page 1148, lines 13 and 14, page 1159, § 850.030, 1960 Code (Repealer)
51595	Parking, Texas Ave. (Not codified)
51596	Playground stop, Victor Street and Eleventh Street (Not codified)
51597	Parking, Ridgewood Ave. (Not codified)
51598	Parking, Christy Ave. (Not codified)
51599	Parking, Haven Street (Not codified)
51600	Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Special)
51601	Vacates alley (Special)
51602	Vacates alley (Special)
51603	Alley improvement (Special)
51604	Sale of property (Special)
51605	Sale of property (Special)
51606	Parking, Page Boulevard (Not codified)
51607	Designates Ninth Street one-way street (Not codified)
51608	Prohibits commercial vehicles, Sutherland Ave. (Not codified)
51609	Designates Lansdowne Ave. one-way street (Not codified)
51610	Designates Pernod Ave. one-way street (Not codified)
51611	Repeals line 45, page 1165, § 850.040, 1960 Code (Repealer)
51612	Repeals line 11, page 1166, § 850.040, 1960 Code (Repealer)
51613	Designates Juniata one-way street (Not codified)
51614	Traffic-control signals, Lansdowne Ave. and Wabash Ave. (Not codified)
51615	Authorizes contract for extension and modification of water distribution system (Special)
51616	Appropriation for planning and construction at Lambert-St. Louis Municipal Airport (Special)
51617	Repeals Ch. 102, 1960 Code (Repealer)
51618	Adds § 347.080, 1960 Code, weighers (9.24.100)
51619	Amends § 724.020, 1960 Code, license fee for billiard tables and pool tables (Repealed by 60735)
51620	Authorizes contracts for construction of parking lot (Special)
51621	Sale of property, repeals Ord. 48197 (Special)
51622	Sale of property (Special)
51623	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
51624	Amends §§ 1 and 4, Ord. 51424, conditional vacation, various streets and alleys (Special)
51625	Improvement, Lexington Ave. (Special)
51626	Authorizes contracts for repair of streets and alleys, installation of street lighting and acquisition of land for parks in designated neighborhood rehabilitation areas (Special)

51627	Authorizes contracts for plans for construction of parking garage (Special)
51628	Authorizes contracts for improvement of Southwest Ave. (Special)
51629	Establishes Southwest Ave. (Special)
51630	Authorizes purchase of land for Soulard Market parking lot (Special)
51631	Authorizes contract for parking meters in Soulard Market parking lot (Special)
51632	Vacates part Lawton Boulevard and alleys, block 1949 (Special)
51633	Vacates alley, block 923, part Market Street (Special)
51634	Vacates part Randolph Street, Twenty-third Street and alleys block 1709B (Special)
51635	Amends § 23.010, 1960 Code, council on human relations (Repealed by 57173)
51636	Authorizes acceptance of funds for installation of traffic control signals at Union Boulevard and Palm Street (Special)
51637	Amends Chs. 390, 391, 392, 393 and 394, 1960 Code, housing standards and regulations (Repealed by 56797)
51638	Amends § 1, Ord. 49424, establishes highway (Special)
51639	Authorizes transfer to state Malcolm Bliss Mental Health Center (Special)
51640	Establishes park, vacates Brantner Place (Special)
51641	Authorizes easement to Metropolitan St. Louis sewer district (Special)
51642	Changes Theodosia Ave. to Aldine Place (Special)
51643	Appropriation for acquisition of land for park (Special)
51644	Establishes park, authorizes acquisition of land (Special)
51645	Vacates alley (Special)
51646	Vacates alley (Special)
51647	Vacates part DeKalb Street, alleys, block 757 (Special)
51648	Vacates alley (Special)
51649	Vacates part Victor Street, alleys, block 743 (Special)
51650	Sale of property (Special)
51651	Parking, Roberts Ave. (Not codified)
51652	Repeals Ord. 48953 (Repealer)
51653	Designates Carlsbad Ave. one-way street (Not codified)
51654	Prohibits commercial vehicles, Newport Court (Not codified)
51655	Designates Dempsey Ave. one-way street (Not codified)
51656	Designates Elizabeth Ave. one-way street (Not codified)
51657	Designates Botanical Ave. one-way street (Not codified)
51658	Designates Botanical Ave. one-way street (Not codified)
51659	Repeals line 23, page 1275, § 888.040, 1960 Code (Repealer)
51660	Repeals line 10, page 1107, § 850.020, 1960 Code (Repealer)
51661	Repeals line 45, page 1112, § 850.020, 1960 Code (Repealer)
51662	Repeals line 5, page 1152, § 850.030, 1960 Code (Repealer)
51663	Amends § 2, Ord. 41527, parking, Meramec Street (Not codified)
51664	Designates Penrose Street one-way street (Not codified)
51665	Traffic-control signals, Cote Brilliante Ave. and Kingshighway Boulevard (Not codified)
51666	Traffic-control signals, Marcus Ave. and St. Louis Ave., Union Boulevard and Wabada Ave. (Not codified)
51667	Designates Juniata Street one-way street (Not codified)
51668	Stop intersection, Flad Ave. and Thurman Ave. (Not codified)
51669	Designates Hartford Street one-way street (Not codified)
51670	Repeals lines 19 and 20, page 1268, § 888.030, 1960 Code (Repealer)
51671	Repeals line 27, page 1156, § 850.030, 1960 Code (Repealer)

51672	Parking, Christy Boulevard (Not codified)
51673	School stop, Delor Street and Adkins Ave. (Not codified)
51674	Church stop, Delor Street and Adkins Ave. (Not codified)
51675	Designates Labadie Ave. one-way street (Not codified)
51676	Parking, St. Louis Ave. (Not codified)
51677	Repeals line 13, page 1088, § 850.020, 1960 Code (Repealer)
51678	Repeals line 14, page 1168, § 850.050, 1960 Code (Repealer)
51679	Prohibits commercial vehicles, Hartford Street (Not codified)
51680	Yield right-of-way, Tamm Ave. at Pernod Ave. (Not codified)
51681	Designates Indiana Ave. one-way street (Not codified)
51682	Authorizes quit claim deed to University Heights Redevelopment Corporation No. 1 (Special)
51683	Appropriation for acquisition of land for development at Lambert-St. Louis Municipal Airport (Special)
51684	Establishes addition to Lambert-St. Louis Municipal Airport (18.04.030H)
51685	Parking, Germania Street, repeals Ord. 50441 (Not codified)
51686	Stop intersection, Maple Place and Maple Ave. (Not codified)
51687	Repeals Ord. 43810 (Repealer)
51688	Stop intersection, Catalpa Street and Maple Ave. (Not codified)
51689	Stop intersection, Beach Ave. and Maple Ave. (Not codified)
51690	Designates LaSalle Street one-way street (Not codified)
51691	Designates alley, block 482E one-way (Not codified)
51692	Repeals line 14, page 1227, § 887.030, 1960 Code (Repealer)
51693	Parking, Ninth Street (Not codified)
51694	Traffic-control signals, Des Peres Ave. and Forest Park Parkway (Not codified)
51695	Parking, Tenth Street (Not codified)
51696	Parking, Tenth Street (Not codified)
51697	Repeals line 43, page 1153, § 850.030, 1960 Code (Repealer)
51698	Amends § 888.030, 1960 Code, parking, Mallinckrodt Street (Not codified)
51699	Stop intersection, Salena Street and Chippewa Street (Not codified)
51700	Parking, Kingshighway Boulevard (Not codified)
51701	Parking, Fourteenth Street (Not codified)
51702	Parking, Eighth Street (Not codified)
51703	Designates Gratiot Street one-way street (Not codified)
51704	Repeals line 16, page 1153, § 850.030, 1960 Code (Repealer)
51705	Repeals line 41, page 1166, § 850.040, 1960 Code (Repealer)
51706	Amends § 2, line 28, Ord. 50746, traffic signals, Natural Bridge Ave., Parnell Street and Salisbury Street
51707	Repeals line 28, page 1100, line 7, page 1101, § 850.020, 1960 Code (Repealer)
51708	Parking, Eighth Street (Not codified)
51709	Designates Eads Ave. one-way street (Not codified)
51710	Yield right-of-way, Park Road at Union Boulevard, repeals line 33, page 1122, § 850,020, 1960 Code (Not codified)
51711	Designates Westminster Place one-way street (Not codified)
51712	Designates Washington Ave. one-way street (Not codified)
51713	Parking, Van Buren Street (Not codified)
51714	Parking, Louisiana Ave. (Not codified)
51715	Designates East Michigan Ave., West Michigan Ave., North Dakota Street and South Dakota Street one-way streets (Not codified)

51716	Designates Rosedale Ave. one-way street (Not codified)
51717	Designates McPherson Ave. one-way street (Not codified)
51718	Designates Kingsbury Ave. one-way street (Not codified)
51719	Parking, Maryland Plaza (Not codified)
51720	Parking, Van Buren Street and Marceau Street (Not codified)
51721	Parking, Virginia Ave. (Not codified)
51722	Traffic-control signals, Broadway and Bates Street (Not codified)
51723	Designates Pershing Ave. one-way street (Not codified)51724. Stop intersection, Twenty-second Street and Bremen Ave. (Not codified)
51725	Repeals line 25, page 1166, § 850.040, 1960 Code (Repealer)
51726	Repeals line 23, page 1166, § 850.040, 1960 Code (Repealer)
51727	Conditional vacation, Cornelia Street (Repealed by 58616)
51728	Authorizes contracts for improvement, Sherman Park (Special)
51729	Vacates alley (Special)
51730	Submits question of issuance of bonds to voters (Special)
51731	Sale of property, repeals Ord. 46985 (Special)
51732	Sale of property (Special)
51733	Authorizes contracts for improvement, park area and Fountain Park (Special)
51734	Vacates alley (Special)
51735	Adds § 885.181, 1960 Code, parking meter keys (17.62.330)
51736	Amends district map 1960, changes zoning to "H" commercial district (Special)
51737	Amends district map 1960, changes zoning to "G" commercial district (Special)
51738	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
51739	Amends district map 1960, changes zoning to "G" commercial district (Special)
51740	Conditional vacation, parts of Greer and Elmbank Ave. (Special)
51741	Vacates part alley, block 2221, Theresa and Clark Aves. (Special)
51742	Vacates part Twenty-second Street (Special)
51743	Vacates alley, part of Geyer Ave. (Special)
51744	Vacates Lesperance Street (Special)
51745	Used car sales, repeals Ord. 51529 (Ch. 15.88)
51746	Amends § 307.140, 1960 Code, taxicab company colors (Repealed by 58795)
51747	Vacates alley (Special)
51748	Vacates alley (Special)
51749	Vacates alley (Special)
51750	Vacates alley (Special)
51751	Vacates alley (Special)
51752	Vacates part Gratiot Street (Special)
51753	Vacates Crittenden Street, alleys, block 1964 (Special)
51754	Vacates St. George street (Special)
51755	Parking, Milentz Ave. (Not codified)
51756	Repeals Ord. 45089 (Repealer)
51757	Parking, Alcott Ave. (Not codified)
51758	Designates Prange Ave. one-way street (Not codified)
51759	Repeals line 33, page 1151, § 850.030, 1960 Code (Repealer)
51760	Repeals line 4, page 1155, § 850.030, 1960 Code (Repealer)
51761	Repeals line 3, page 1212, § 887.010, 1960 Code (Repealer)
51762	Parking, Warren Street (Repealed by 52618)
51763	Traffic-control signals, Kingshighway Boulevard and Forest Park Ave. (Not codified)
51764	Repeals Ord. 50858 (Repealer)

51765	Repeals line 12, page 1163, line 34, page 1167, § 850.040, 1960 Code (Repealer)
51766	Parking, Milentz Ave. (Not codified)
51767	Traffic-control signals, Forest Park Ave. and Euclid Ave. (Not codified)
51768	Traffic-control signals, Delmar Boulevard and Euclid Ave. (Not codified)
51769	Stop intersection, Twenty-third Street and Bremen Ave. (Not codified)
51770	Yield right-of-way, Loughborough Drive at Grand Drive and on Holly Hills Boulevard at Grand Drive (Not codified)
51771	Traffic-control signals, Kingshighway Boulevard, Christy Boulevard and Nottingham Ave. (Not codified)
51772	Parking, Eichelberger Street (Not codified)
51773	Parking, Waddell Ave. (Not codified)
51774	Parking, Koln Street (Not codified)
51775	Improvement, Wilson Ave. (Special)
51776	Partial improvement, Blase Ave. (Special)
51777	Sale of property (Special)
51778	Sale of property (Special)
51779	Authorizes contracts for preservation work at Soldiers' Memorial Building (Special)
51780	Authorizes contracts for planning and construction of juvenile court and detention home (Special)
51781	Appropriation for survey and development of various rehabilitation areas (Special)
51782	Authorizes contracts for various hospital improvements (Special)
51783	Establishes Carrie Ave. (Special)
51784	Authorizes contract for plans for reconstruction of Compton Ave. viaduct (Special)
51785	Vacates part Cardinal and Lawton Aves., alley, block 1949 (Special)
51786	Repeals § 527.200, 1960 Code (Repealer)
51787	Illumination in parking lots (8.70.130, 8.70.140)
51788	Relief of William Beteet (Special)
51789	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
51790	Amends district map 1960, changes zoning to "H" commercial district (Special)
51791	Amends district map 1960, changes zoning to "F" local business district (Special)
51792	Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Special)
51793	Vacates South Lane (Special)
51794	Vacates part of Koeln and Robert Aves., Water and Upton Streets (Special)
51795	Vacates alley (Special)
51796	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
51797	Improvement, Lansdowne Ave. (Special)
51798	Sale of property (Special)
51799	Describes blighted area (Special)
51800	Authorizes contracts for planning and construction of Compton Ave. viaduct (Special)
51801	Appropriation for work at Lambert-St. Louis Municipal Airport (Special)
51802	Parking, Kuhs Place (Not codified)
51803	Parking, Fountain Ave. (Not codified)
51804	Repeals last line § 14(4), Ord. 51233, speed limit, Hall Street (Repealed by 57831)
51805	Designates Plateau Ave. one-way street (Not codified)
51806	Designates Glades Ave. one-way street (Not codified)
51807	Designates Garner Ave. one-way street (Not codified)
51808	Designates Bruno Ave. one-way street (Not codified)

51809	Designates Waldemar Ave. one-way street (Not codified)
51810	Parking, Manchester Ave. (Not codified)
51811	Prohibits commercial vehicles, January Ave. (Not codified)
51812	Amends § 851.010, 1960 Code, designates Enright Ave. one-way street (Not codified)
51813	Prohibits commercial vehicles, Ridge Ave. (Not codified)
51814	Parking, McCausland Ave. (Not codified)
51815	Parking, Manchester Ave. (Not codified)
51816	Parking, Ecoff Ave. (Not codified)
51817	Designates Cozens Ave. one-way street (Not codified)
51818	Repeals line 52, paragraph 5, Ord. 51233 (Repealed by 57831)
51819	Speed limit, Sheridan Ave., repeals line 82, paragraph 5, Ord. 51233 (Repealed by 57831)
51820	Prohibits commercial vehicles, Gregg Ave. (Not codified)
51821	Stop intersection, Semple Ave. and Minerva Ave. (Not codified)
51822	Repeals line 36, page 1157, § 850.030, 1960 Code (Repealer)
51823	Amends § 853.010, 1960 Code, traffic signal intersections (Not codified)
51824	Parking, Dale Ave. (Not codified)
51825	Designates Nashville Ave. one-way street (Not codified)
51826	Designates West Park Ave. one-way street (Not codified)
51827	Parking, West Park Ave. (Not codified)
51828	Repeals Ord. 49350 (Repealer)
51829	Parking, Germania Street, repeals Ord. 50441 (Not codified)
51830	Stop intersection, Evans Ave. and Spring Ave. (Not codified)
51831	Repeals Ord. 50626 (Repealer)
51832	Repeals lines 5, 17 and 18, page 1258, § 888.030, 1960 Code (Repealer)
51833	Repeals Ord. 47574 (Repealer)
51834	Stop intersection, Semple Ave. and Ridge Ave. (Not codified)
51835	Prohibits commercial vehicles, Aldine Place (Not codified)
51836	Parking, Goodfellow Ave. (Not codified)
51837	Repeals line 14, page 1275, § 888.040, 1960 Code (Repealer)
51838	Parking, McCausland Ave. (Not codified)
51839	Stop intersection, Michigan Ave. and Miami Street (Not codified)
51840	Authorizes contracts for construction of fire station No. 21 and No. 11-16 (Special)
51841	Parking, Nottingham Ave. (Not codified)
51842	Prohibits tattooing minors (Ch. 15.124)
51843	Vacates alley (Special)
51844	Vacates part St. Charles, Vine, Olive and Locust Streets and alleys, blocks 87 and 89 (Special)
51845	Vacates Pierce Ave. (Special)
51846	Vacates alley (Special)
51847	Vacates alley (Special)
51848	Vacates alleys, block 761 (Special)
51849	Vacates part Twenty-third Street, alleys, block 1709A (Special)
51850	Parking, Cass Ave. (Not codified)
51851	Parking, Bissell Street (Not codified)
51852	Repeals line 6, page 1153, § 850.030, 1960 Code (Repealer)
51853	Repeals Ord. 46853 (Repealer)
51854	Prohibits commercial vehicles, Winnebago Street (Not-codified)
51855	Repeals line 42, page 1159, § 850.030, 1960 Code (Repealer)
51856	Parking, Sidney Street (Not codified)
51857	Stop intersection, Belle Glade Ave. and Aldine Ave. (Not codified)
51858	Repeals Ord. 50929 (Repealer)
51859	Stop intersection, Arkansas Ave. and Pestalozzi Street (Not codified)

51860	Amends § 888.040, 1960 Code, parking, Bent Ave. (Not codified)
51861	Parking, Chippewa Street (Not codified)
51862	Repeals line 7, page 1252, § 888.010, 1960 code (Repealer)
51863	Parking, St. Ferdinand Ave. (Not codified)
51864	Designates St. Ferdinand Ave. one-way street (Not codified)
51865	Parking, Papin Street (Not codified)
51866	Designates Franklin Ave. one-way street (Not codified)
51867	Designates Delmar Boulevard one-way street (Not codified)
51868	Widening Grand Boulevard (Special)
51869	Designates Allemania Street one-way street (Not codified)
51870	Designates Austria Ave. one-way street (Not codified)
51871	Adds Ch. 746 consisting of §§ 751.110—751.150, 1960 Code, obscene matter, repeals §§ 751.010—751.100 (15.32.010—15.32.040)
51872	Additional appropriation for primary election (Special)
51873	Establishes street cleaning districts (Repealed by 57831)
51874	Sale of property (Special)
51875	Amends Ord. 51650, sale of property (Special)
51876	Repeals line 9, page 1280, § 888.040, 1960 Code (Repealer)
51877	Repeals line 5, page 1270, § 888.030, 1960 Code (Repealer)
51878	Parking, Dickson Street (Not codified)
51879	Parking, Stoddard Street (Not codified)
51880	Parking, Beck Ave. (Not codified)
51881	Parking, Race Course Ave. (Not codified)
51882	Yield right-of-way, Broadway at Seventh Street off ramp (Not codified)
51883	Parking, Jefferson Ave. (Not codified)
51884	Parking, Beck Ave. (Not codified)
51885	Parking, Garrison Ave. (Not codified)
51886	Amends § 887.060, 1960 Code, parking, West Florissant Ave. (Not codified)
51887	Playground stop, Sidney Street and Eleventh Street (Not codified)
51888	Repeals line 17, page 1167, § 850.040, 1960 (Repealer)
51889	Prohibits commercial vehicles, Labadie Ave. (Not codified)
51890	Stop intersection, St. Charles Street and Fourteenth Street (Not codified)
51891	Stop intersection, Lucas Ave. and Fourteenth Street (Not codified)
51892	Parking, Indiana Ave. (Not codified)
51893	Designates Walnut Street one-way street (Not codified)
51894	Amends § 887.030, 1960 Code, parking, Fourth Street (Not codified)
51895	Parking, Fourth Street (Not codified)
51896	Amends § 887.030, 1960 Code, parking, fourth Street (Not codified)
51897	Stop intersection, Elm Street and Sixth Street (Not codified)
51898	Repeals fine 18, page 1167, § 850,040, 1960 Code (Repealer)
51899	Parking, Pennsylvania Ave. (Not codified)
51900	Repeals line 7, page 1204, § 886.010, 1960 Code (Repealer)
51901	Repeals lines 2 and 11, page 1281, § 888.040, 1960 Code (Repealer)
51902	Traffic-control signals, Broadway and Franklin Ave., Franklin Ave. and Ninth Street, Franklin Ave. and Fourteenth Street (Not codified)
51903	Prohibits commercial vehicles, Fairview Ave. (Not codified)
51904	Parking, Keokuk Street (Not codified)
51905	Repeals lines 3 and 21, page 1165, § 850.040, 1960 Code (Repealer)
51906	Improvement, Michigan Ave. (Special)
51907	Authorizes contracts for planning and construction of workhouse (Special)
51908	Appropriation for division of community services (Special)

51909	Parking, Fyler Ave. (Not codified)
51910	Parking, Lawn Ave. (Not codified)
51911	Parking, Oleatha Ave. (Not codified)
51912	Parking, Hereford Street (Not codified)
51913	Parking, Hereford Street (Not codified)
51914	Amends § 888.030, 1960 Code, parking, Kemper Ave. (Not codified)
51915	Amends §§ 1 and 2, Ord. 46852, parking, Phillips Ave. (Not codified)
51916	Repeals line 9, page 1164, § 850.040, 1960 Code (Repealer)
51917	Stop intersection, Eighth Street and Geyer Ave. (Not codified)
51918	Amends § 887.030, 1960 Code, parking, Sidney Street (Not codified)
51919	Repeals line 9, page 1280, § 888.040, 1960 Code (Repealer)
51920	Amends § 888.020, 1960 Code, parking, Twentieth Street (Not codified)
51921	Parking, Seventh Street (Not codified)
51922	Repeals line 9, page 1172, § 851.010, 1960 Code (Repealer)
51923	Repeals line 12, page 1279, § 888.040, 1960 Code (Repealer)
51924	Amends § 887.030, 1960 Code, parking, Twelfth Boulevard (Not codified)
51925	Parking, Skinker Boulevard (Not codified).
51926	Stop intersection, Potomac Street and Roger Place (Not codified)
51927	Parking, Lawn Ave. (Not codified)
51928	Parking, Cates Ave. (Not codified)
51929	Designates Bartmer Ave. one-way street, repeals Ord. 51089 (Not codified)
51930	Stop intersection, Eleventh Street and Cole Street (Not codified)
51931	Prohibits commercial vehicles, San Francisco Ave. (Not codified)
51932	Additional appropriation for construction of bridges (Special)
51933	Authorizes grant of easement to Union Electric Co. (Special)
51934	Repeals line 13, page 1235, § 887.040, 1960 Code (Repealer)
51935	Parking, Geraldine Ave. (Not codified)
51936	Amends § 887.020, 1960 Code, fire lane, Carr Street (Not codified)
51937	Repeals line 4, page 1254, § 888.020, 1960 Code (Repealer)
51938	Parking, Seventh Street (Not codified)
51939	Parking, Salena Street (Not codified)
51940	Parking, Lombard Street (Not codified)
51941	Parking, Hickory Street (Not codified)
51942	Amends § 887.010, 1960 Code, parking, Park Ave. (Repealed by 52577, 53851)
51943	Parking, Fourth Street (Not codified)
51944	Parking, Easton Ave. (Not codified)
51945	Parking, Thirty-ninth Street (Not codified)
51946	Parking, Cleveland Ave. (Not codified)
51947	Repeals line 3, page 1097, § 850.020, 1960 Code (Repealer)
51948	Designates Alcott Ave. one-way street (Not codified)
51949	Repeals line 14, page 1262, line 16, page 1265, line 19, page 1266, § 888.030, 1960 Code (Repealer)
51950	Parking, Tenth Street (Not codified)
51951	Repeals line 30, page 1150, § 850.030, 1960 Code (Repealer)
51952	Parking, Pestalozzi Street (Not codified)
51953	Parking, Devolsey Street (Not codified)
51954	Parking, Euclid Ave. (Not codified)
51955	Parking, Southwood Ave. (Not codified)
51956	Prohibits commercial vehicles, Washington Ave. (Not codified)
51957	Designates Catlin Lane one-way street (Not codified)
51958	Parking, Kingshighway Boulevard (Not codified)
51959	Amends § 2, Ord. 51234, Spring Ave. major street (Not codified)
51960	Parking, Mills Street (Not codified)

51961	Authorizes contracts for improvement of Penrose Park (Special)
51962	Authorizes contracts for construction of park buildings (Special)
51963	Authorizes contracts for improvement of Carondelet Park (Special)
51964	Authorizes acquisition of site for park (Special)
51965	Conditional vacation of alley, block 1106, repeals Ord. 50058 (Special)
51966	Vacates alley (Special)
51967	Vacates Fairfax Ave. (Special)
51968	Relief of Sinclair Refining Co. (Special)
51969	Authorizes contracts for work at Cass Ave. Health Center (Special)
51970	Traffic-control signals, Cass Ave. and Ninth Street, Cass Ave. and Fourteenth Street (Not codified)
51971	Repeals lines 32 and 33, page 1156, line 45, page 1160, line 7, page 1161, 850.030, 1960 Code (Repealer)
51972	Prohibits commercial vehicles, Wells Ave. (Repealed by 52812)
51973	Stop intersection, Semple Ave. and Wells Ave. (Not codified)
51974	Traffic-control signals, Seventh Street and Russell Boulevard (Not codified)
51975	Parking, Arsenal Street (Not codified)
51976	Amends § 887.010, 1960 Code, parking, Arsenal Street (Not codified)
51977	Parking, Seventh Street (Not codified)
51978	Traffic-control signals, Broadway and Dorcus Street, Broadway and Lynch Street, Seventh Street and Sidney Street, Lynch Street and Seventh Street (Not codified)
51979	Parking, Ninth Street (Not codified)
51980	Parking, Ninth Street (Not codified)
51981	Parking, Compton Ave. (Not codified)
51982	Parking, Compton Ave. (Not codified)
51983	Amends §§ 887.010, 887.030 and 887.040, 1960 Code, parking, various streets (Repealed by 53060)
51984	Designates Fourth Street one-way street (Not codified)
51985	Repeals lines 19 and 20, page 1239, 887.040, 1960 Code (Repealer)
51986	Repeals line 1, page 1163, § 850.040, 1960 Code (Repealer)
51987	Prohibits commercial vehicles, Dover Place (Not codified)
51988	Repeals line 42, page 1150, § 850.030, 1960 Code (Repealer)
51989	Repeals line 10, page 1162, § 850.040, 1960 Code (Repealer)
51990	Amends § 887.040, 1960 Code, parking, Delmar Boulevard (Not codified)
51991	Repeals line 8, page 1153, line 26, page 1155, § 850.030, 1960 Code (Repealer)
51992	Parking, Wise Ave. (Not codified)
51993	Speed limit, Forest Park Parkway (Repealed by 57831)
51994	Stop intersection, Forest Park Parkway off ramp and Lindell Boulevard (Not codified)
51995	Stop intersection, Catlin Lane and Lindell Boulevard (Not codified)
51996	Stop intersection, Wyoming Street and Gustine Ave. (Not codified)
51997	Amends § 888.030, 1960 Code, parking, Thurman Ave. (Not codified)
51998	Amends § 887.040, 1960 Code, parking, Chestnut Street (Not codified)
51999	Amends § 887.010, 1960 Code, parking, St. Charles Street (Not codified)
52000	Prohibits commercial vehicles, Forest Park Parkway (Not codified)
52001	Parking, Fair Ave. (Not codified)
52002	Amends § 887.040, 1960 Code, parking, Euclid Ave. (Not codified)
52003	Parking, Duke Street (Not codified)
52004	Parking, Hampton Ave. (Not codified)
52005	Stop intersection, Bancroft Ave. and Sulphur Ave. (Not codified)
52006	Designates Hoffman Ave. one-way street (Not codified)
52007	Parking, Chippewa Street (Not codified)
52008	Directs issuance of bonds (Special)

52009 Authorizes contracts for planning and construction in flood control protection reaches 3 and 4 (Special)

52010 Authorizes contracts for planning and construction of Machacek Branch Library (Special)

52011 Authorizes contracts for resurfacing various streets and construction of certain streets (Special)

52012 Authorizes contracts for improvement, Germania Street (Special)

52013 Authorizes contracts for public improvements (Special)

52014 Authorizes contracts for planning and construction of Divoll Branch Library (Special)

52015 Authorizes contracts for development at parks (Special)

52016 Authorizes contracts for improvement, Park Ave. (Special)

52017 Authorizes contracts for street lighting (Special)

52018 Vacates part Rutger Street and alleys, block 692 (Special)

52019 Additional appropriation for consolidation of hospital laundry facilities (Special)

52020 Vacates part of alley, (Special)

52021 Appropriation for current expenses (Special)

52022 Amends § 151.050, 1960 Code, cigarette occupation tax (8.10.050)

52023 Amends §§ 402.150 and 402.160, 1960 Code, rooming house permit fees (Repealed by 60828)

52024 Amends § 573.120, 1960 Code, open air markets (11.44.470)

52025 Amends § 916.040, 1960 Code, board of adjustment appeals (Title 26)

52026 Amends § 918.030, 1960 Code, certificate of occupancy (Title 26)

52027 Adds § 918.040,1960 Code, front yard line survey (Title 26)

52028 Amends §§ 2118.21, 2118.23, 2118.24, 2118.61, 2118.71, 2127.4, 3102.21, 3402.5, 3405.4, 3508.0, 3626.0, 3734.42, 3734.45, 3736.2, 3802.22, 3804.2, and 3804.5, 1960 Code, building (Repealed by 56797)

52029 Amends § 3736.1, 1960 Code, building code permits (Repealed by 56797)

52030 Licenses and regulates businesses, repeals Chs. 619, 625, 626, 682 and 725, 1960 Code (Ch. 8.06)

52031 Amends table C, Ord. 50502, 1960 Code, building inspections (Repealed by 52031)

52032 Amends § 127.040, 1960 Code, collection division employee compensation (Ch. 4.44)

52033 Improvement, Calvary Ave. (Special)

52034 Improvement, Carrie Ave. (Special)

52035 Vacates alleys (Special)

52036 Amends § 265.170, 1960 Code, excavation inspection fees (20.30.140)

52037 Dedication, parts Park Ave. (Special)

52038 Establishes alley (Special)

52039 Amends § 917.020, 1960 Code, petition procedure (26.88.040)

52040 Prohibits commercial vehicles, Ohio Ave. (Repealed by 52112)

52041 Prohibits commercial vehicles, Itaska Street (Not codified)

52042 Parking, McCullagh Place (Not codified)

52043 Prohibits commercial vehicles, Dresden Ave. (Not codified)

52044 Establishes addition to area of parking garage (Special)

52045 Vacates alley (Special)

52046 Vacates Withers Ave. (Special)

52047 Vacates alley, parts of School and Thomas Streets and Cook and Channing Aves. (Special).

52048 Vacates streets and alleys in Mill Creek Valley redevelopment area (Special)

52049 Vacates streets and alleys in Mill Creek Valley project area (Special)

52050	Ratifies amendment to grant agreement project No. 9-23-034-C216, contract No. FA-CE-1445 (Special)
52051	Ratifies grant agreement project No. 9-23-034-C317, contract No. FA-CE-2067 (Special)
52052	Ratifies amendment to grant agreement project No. 9-23-034-6115, contract No. FA3-1394 (Special)
52053	Ratifies amendment to grant agreement project No. 9-23-034-C216, contract No. FA-CE-1445 (Special)
52054	Ratifies amendment to grant agreement project No. 9-23-034-6115, contract No. FA3-1394 (Special)
52055	Ratifies grant agreement project No. 9-23-034-C216, contract No. FA-CE-1445 (Special)
52056	Amends § 881.080, 1960 Code, continuous parking, § 881.090, 1960 Code, parking wrecked vehicles (Repealed by 57831)
52057	Adds § 882.060, 1960 Code, impounding and sale of illegally parked cars (Repealed by 56910)
52058	Vacates January Ave. (Special)
52059	Vacates part alley (Special)
52060	Vacates unnamed street (Special)
52061	Conditional vacation, part alley, repeals Ord. 46081 (Special)
52062	Vacates alley (Special)
52063	Sale of property (Special)
52064	Amends § 851.010, 1960 Code, designates Oleath Ave. one-way street (Not codified)
52065	Designates Marquette Ave. one-way street (Not codified)
52066	Designates Potomac Street one-way street (Not codified)
52067	Acquisition of property for construction of parking facilities and issuance of bonds (Special)
52068	Repeals Chs. 691, 692, 701, 1960 Code (Repealer)
52069	Amends § 29-203, Ord. 52030, travel bureau business tax (Repealed by 60735)
52070	Amends § 151.050, 1960 Code, cigarette occupation tax (8.10.050)
52071	Relief of Mt. Moriah Baptist Church (Special)
52072	Additional appropriation for current expenses (Special)
52073	Transfer of property to state (Special)
52074	Appropriation for surveys for purchase of equipment for accounting and billing procedures (Special)
52075	Authorizes lease agreement with Ozark Airlines, Inc. (Special)
52076	Establishes site for park, authorizes purchase of land (Special)
52077	Appropriation for acquisition of land for park (Special)
52078	Authorizes contracts for construction of Victor Street relief sewer (Special)
52079	Appropriation for construction of office building and garage for traffic division (Special)
52080	Additional appropriation for planning and construction of workhouse (Special)
52081	Authorizes option agreement with Apex Oil Company for purchase of property (Special)
52082	Vacates part Walnut Street (Special)
52083	Vacates alleys, block 5264 (Special)
52084	Authorizes purchase of property, contracts for construction of parking facilities (Special)
52085	Amends §§ 29-28 and 29-59, Ord. 52030, coin-operated machines (8.06.424, 8.06.426, 8.06.428)
52086	Amends § 3734.5, 1960 Code, bond for plumber and drainlayer (Repealed by 56797)
52087	Amends § 3734.28, 1960 Code, journeyman plumber (Repealed by 56797)
52088	Amends §§ 3734.14 and 3734.41, 1960 Code, plumbers (Repealed by 56797)

52089 Vacates streets and alleys in Kosciusko Redevelopment Area (Special)

52090 Amends § 335.400, 1960 Code (Repealer)

52091 Parking, underneath City Hall and municipal courts building and area west of City Hall (Repealed by 52852)

52092 Amends § 885.130, 1960 Code, parking meter prohibitions (17.62.270)

52093 Prohibits commercial vehicles, Vernon Ave. (Not codified)

52094 Amends district map 1960, changes zoning to "F" local business district (Special)

52095 Amends § 170.010, 1960 Code, apportionment of city court cases (3.08.010)

52096 Vacates Carroll Street (Special)

52097 Vacates alley (Special)

52098 Vacates Elm Street, part Walnut Street, Clark Ave., all dedicated areas in blocks 105 and 106 (Special)

52099 Amends § 605.120, 1960 Code, motor vehicle emblems (17.52.100)

52100 Establishes certain land as part of Mississippi River flood control protection project (Special).

52101 Authorizes agreement with Chicago, Burlington and Quincy Railroad Co. for perpetual easement (Special)

52102 Vacates Montrose Ave. (Special)

52103 Vacates part alley (Special)

52104 Vacates part Highland Park Drive (Special)

52105 Construction of sidewalks on Morgan Ford Road (Special)

52106 Amends § 885.060, 1960 Code, parking meter zones, repeals § 885.220, 1960 Code (17.62)

52107 Amends § 885.121, 1960 Code, parking meter violation tags (17.62.260)

52108 Repeals Ord. 51481 (Repealer)

52109 Regulates parking at City Hall, repeals §§ 884.010, 884.020 and 884.030, 1960 Code (Repealed by 55422)

52110 Amends district map 1960, changes zoning to "A" single-family dwelling district (Special)

52111 Amends § 510.030, 1960 Code, dog licenses (Ch. 10.04)

52112 Prohibits commercial vehicles or bus, Ohio Ave., repeals Ord. 52040 (Repealed by 54400)

52113 Changes Kingshighway to Euclid Ave. (Special)

52114 Vacates alley (Special)

52115 Changes Kingshighway Boulevard to Barnes Hospital Plaza (Special)

52116 Adds § 269.330, 1960 Code, removal of furniture and house goods from streets (Repealed by 56726)

52117 Authorizes purchase of easement for water main from Two-O-Seven Corp. (Special)

52118 Parking, Daggett Ave. (Not codified)

52119 Prohibits commercial vehicles, Columbia Ave. (Not codified)

52120 Traffic-control signals, West Florissant Ave. and Pope Ave. (Not codified)

52121 Traffic-control signals, Riverview Boulevard and West Florissant Ave. (Not codified)

52122 Amends § 887.010, 1960 Code, parking, Chippewa Street (Not codified)

52123 Amends § 1, Ord. 51310, parking, Chippewa Street (Not codified)

52124 Parking, Scanlan Ave. (Not codified)

52125 Stop intersection, January Ave. and Devonshire Ave. (Not codified)

52126 Prohibits commercial vehicles, Greer Ave. (Not codified)

52127 Stop intersection, Cora Ave. and Ashland Ave. (Not codified)

52128 Amends § 887.040, 1960 Code, parking, Chippewa Street (Not codified)

52129 Prohibits commercial vehicles, Creighton Drive (Not codified)

52130 Playground stop, Thekla Ave. and Ruskin Ave. (Not codified)

52131 Parking, St. Louis Ave. (Not codified)

52132 Minimum standards for nonresidential structures (25.32)

52133 Authorizes contracts for construction of traffic islands on Rosedale Ave. (Special)

52134 Sale of property (Special)

52135 Sale of property (Special)

52136 Sale of property (Special)

52137 Prohibits spectator from throwing any object at players or on the field (Ch. 15.54)

52138 Appropriation for acquisition of property (Special)

52139 Appropriation for damages (Special)

52140 Authorizes contracts for construction of community center (Repealed by 55555)

52141 Amends §§ 335.330 and 335.340, adds 335.335, 1960 Code, firemen's retirement system (4.18.185, 4.18.195)

52142 Authorizes acceptance of funds for space teaching program at St. Louis Planetarium (Special)

52143 Sale of property (Special)

52144 Amends § 1, Ord. 51866, designates Franklin Ave. one-way street (Not codified)

52145 Establishes land as part of Mississippi River flood control protection project (Special)

52146 Authorizes agreement with Laclede Pipeline Co. for easement for underground gas pipeline (Special)

52147 Directs issuance of bonds (Special)

52148 Amends Ords. 50033 and 51442, permits additional redevelopment corporations (Special)

52149 Parking spaces at polling places for voters (Repealed by 57831)

52150 Amends district map 1960, changes zoning to "J" industrial district (Special)

52151 Parking, Lansdowne Ave. (Not codified)

52152 Approves modifications in redevelopment plan for Mill Creek Valley Project (Special)

52153 Vacates Jasper Park (Special)

52154 Authorizes contract for street and park lighting (Special)

52155 Requires taxicabs to have exterior side rear view mirror (Repealed by 58795)

52156 Traffic-control signals, Grand Ave. and Hebert Street (Not codified)

52157 Repeals lines 11 and 13, page 1149, and lines 23 and 24, page 1151, § 850.030, 1960 Code (Repealer)

52158 Repeals line 12, page 1282B, § 888.040, 1960 Code (Repealer)

52159 Prohibits commercial vehicles, Maffitt Ave. (Not codified)

52160 Parking, Geyer Ave. (Not codified)

52161 Traffic-control signals, Compton Ave. and Shenandoah Ave. (Not codified)

52162 Prohibits commercial vehicles, Theodosia Ave. (Not codified)

52163 Prohibits commercial vehicles, Paulian Place (Not codified)

52164 Stop intersection, Clara Ave. and Etzel Ave., repeals line 20, page 1090, § 850.020, 1960 Code (Not codified)

52165 Stop intersection, Meramec Street and Louisiana Ave. (Not codified)

52166 Traffic-control signals, Grand Ave. and Meramec Street (Not codified)

52167 Prohibits commercial vehicles, Winnebago Ave. (Not codified)

52168 Church stop, Meramec Street and Michigan Ave. (Not codified)

52169 School stop, Shaw Boulevard and Alfred Ave. (Repealed by 53398)

52170 Repeals line 45, page 1118, lines 40 and 41, page 1138, § 850.020, 1960 Code (Repealer)

52171 Repeals line 16, page 1097, line 9, page 1125, § 850.020, 1960 Code (Repealer)

52172 Stop intersection, Lawrence Street and Flad Ave. (Not codified)

52173 Repeals line 23, page 1125, § 850.020, 1960 Code (Repealer)

52174 Prohibits commercial vehicles, Greer Ave. (Not codified)

52175 Repeals line 6, page 1068a, line 25, page 1069, line 43, page 1074, line 6, page 1098a, lines 42 and 43, page 1102, line 16, page 1117, line 30, page 1127, § 850.020, 1960 Code (Repealer)

52176 Repeals line 3, page 1078, line 23, page 1088, line 40, page 1104, § 850.020, 1960 Code (Repealer)

52177 Parking, Waddell Ave. (Not codified)

52178 Designates Genevieve Ave. one-way street (Not codified)

52179 Repeals Ord. 51566 (Repealer)

52180 Repeals line 24, page 1130, § 850.020, 1960 Code (Repealer)

52181 Parking, Dakota Street (Not codified)

52182 Parking, Northrup Ave. (Not codified)

52183 Repeals line 6, page 1149, § 850.030, 1960 Code (Repealer)

52184 Parking, Goodfellow Boulevard (Not codified)

52185 Parking, Eighth Street (Not codified)

52186 Parking, Eighth Street (Not codified)

52187 Stop intersection, Allen Ave. and Ohio Ave. (Not codified)

52188 Repeals line 39, page 1140, § 850.020, 1960 Code (Repealer)

52189 Stop intersection, Wells Ave. and Arlington Ave. (Not codified)

52190 Amends § 1, Ord. 51111, parking, Belt Ave. (Not codified)

52191 Prohibits commercial vehicles, January Ave. (Not codified)

52192 Prohibits commercial vehicles, Hughes Place (Not codified)

52193 Yield right-of-way, Kossuth Drive and Vandeventer Drive (Not codified)

52194 Amends Ch. 745, 1960 Code, charitable solicitations (3.60.010—3.60.030, 8.84.020—8.84.140)

52195 Authorizes contracts for forestry work in rehabilitation areas (Special)

52196 Parking, Boyle Ave. (Not codified)

52197 Parking, Potomac Street (Not codified)

52198 Parking, Flad Ave., repeals Ord. 51063 (Not codified)

52199 Parking, Clayton Ave. (Not codified)

52200 Designates Harris Ave. one-way street (Not codified)

52201 Designates Fair Ave. one-way street (Not codified)

52202 Amends § 887.040, 1960 Code, parking, St. Louis Ave. (Not codified)

52203 Prohibits commercial vehicles, Greer Ave. (Not codified)

52204 Amends § 888.040, 1960 Code, parking, Natural Bridge Ave. (Not codified)

52205 Parking, LaSalle Street (Not codified)

52206 Traffic-control signals, Manchester Ave. and Sarah Street (Not codified)

52207 Prohibits commercial vehicles, Kings Drive (Not codified)

52208 Parking, Spring Ave. (Not codified)

52209 Prohibits commercial vehicles, Highland Ave. (Not codified)

52210 Parking, Easton Ave. (Not codified)

52211 Church stop, Page Boulevard and Temple Place (Not codified)

52212 Designates Semple Ave. one-way street, repeals Ord. 51305 (Not codified)

52213 Stop intersection, Burd Ave. and Cote Brilliante Ave. (Not codified)

52214 Designates Romaine Place one-way street (Not codified)

52215 Repeals Ord. 50399 (Repealer)

52216 Traffic-control signals, Grand Boulevard and Osceola Street (Not codified)

52217 Sale of property to The Procter and Gamble Manufacturing Co. (Special)

52218 Amends § 335.230, 1960 Code, service retirement allowance (Repealed by 58179)

52219 Yield right-of-way sign, Pennsylvania Ave. and Potomac Street (Not codified)

52220 Stop intersection, Bowen Street and Minnesota Ave. (Not codified)

52221 Parking, Juniata Street (Not codified)

52222 Parking, Bent Ave. (Not codified)

52223	Stop intersection, Odell Street and Sublette Ave. (Not codified)
52224	Parking, Boyle Ave. (Not codified)
52225	Repeals line 2, page 1138, line 15, page 1079, § 850.020, 1960 Code (Repealer)
52226	Repeals line 3, page 282c, § 888.050, 1960 Code (Repealer)
52227	Traffic-control signals, Fyler Ave. and Watson Road (Not codified)
52228	Traffic-control signals, Arsenal Street and Sublette Ave. (Not codified)
52229	Repeals line 23, page 1089, line 39, page 1110, line 47, page 1134, line 22, page 1135, line 2, page 1144, § 850.020, 1960 Code (Repealer)
52230	Designates Tower Grove Place one-way street (Not codified)
52231	Amends § 888.030, 1960 Code, parking, Thurman Ave. (Not codified)
52232	Stop intersection, Alfred Ave. and Connecticut Street (Not codified)
52233	Parking, Arsenal Street (Not codified)
52234	School stop, Euclid Ave. and Cote Brilliante Ave. (Not codified)
52235	Repeals lines 1 and 2, page 1275, § 888.040, 1960 Code (Repealer)
52236	Repeals line 9, page 1112, line 16, page 1129, line 30, page 1145, § 850.020, 1960 Code (Repealer)
52237	Parking, Allemania Street (Not codified)
52238	Parking, Allemania Ave. (Not codified)
52239	Repeals line 8, page 1229, § 887.030, 1960 Code (Repealer)
52240	Repeals line 19, page 1240, § 887.040, 1960 Code (Repealer)
52241	Repeals line 16, page 1076, § 850.020, 1960 Code (Repealer)
52242	School stop, Thekla Ave. and Ruskin Ave. (Not codified)
52243	Repeals line 2, page 1228, § 887.030, 1960 Code (Repealer)
52244	Amends § 887.040, 1960 Code, parking, Broadway (Not codified)
52245	Parking, Carrie Ave. (Not codified)
52246	Parking, Bulwer Ave. (Not codified)
52247	Amends § 887.010, 1960 Code, parking, Bulwer Ave. (Not codified)
52248	Amends § 1, Ord. 50908, parking, Morgan Ford Road (Not codified)
52249	Parking, Oak Hill Ave. (Not codified)
52250	Parking, Oak Hill Ave. (Not codified)
52251	Parking, Thurman Ave. (Not codified)
52252	Appropriation for relief of Nick Pellin (Special)
52253	Ratifies amendment to grant agreement project No. 9-23-034-5813, contract No. C3ca1391A (Special)
52254	Authorizes purchase of perpetual easement for water main (Special)
52255	Authorizes purchase of perpetual easement for water main (Special)
52256	Adds §§ 627.040, 627.050, 627.060, 627.070, 627.080 and 627.090, 1960 Code, undertakers (8.106.040—8.106.100)
52257	Repeals lines 13 and 14, page 1171, § 851.010, 1960 Code (Repealer)
52258	Parking, Wharf Street (Not codified)
52259	Parking, Ninth Street (Not codified)
52260	Parking, Eleventh Street (Not codified)
52261	Repeals line 6, paragraph 5, Ord. 51233 (Repealed by 57831)
52262	Repeals line 26, page 1087, line 24, page 1089, line 39, page 1094, line 34, page 1117, line 29, page 1142, § 850.020, 1960 Code (Repealer)
52263	Parking, Broadway, repeals Ord. 51274 (Not codified)
52264	Amends § 887.040, 1960 Code, parking, Franklin Ave. (Not codified)
52265	Parking, Wharf (Not codified)
52266	Amends § 1, Ord. 51990, parking, Delmar Boulevard (Not codified)
52267	Repeals lines 13 and 22, page 1166, § 850.040, 1960 Code (Repealer)
52268	Parking, St. Charles Street (Not codified)
52269	Improvement, Michigan Ave. (Special)
52270	Improvement, Walsh Street (Special)

52271	Vacates Kingshighway Boulevard (Special)
52272	Amends § 1, Ord. 52038, establishes alley, block 5022E (Special)
52273	Vacates streets and alleys (Special)
52274	Vacates Clark Ave. and Theresa Ave. (Special)
52275	Vacates alley (Special)
52276	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
52277	Amends § 2(11)(12), Ord. 51983, parking, St. Charles Street (Not codified)
52278	Parking, Gay Street (Not codified)
52279	Parking, Locust Street (Not codified)
52280	Parking, Fourth Street (Not codified)
52281	Fire lane, alley, block 103 (Not codified).
52282	Parking, Market Street (Not codified)
52283	Repeals line 16, page 1217, § 887.010, 1960 Code (Repealer)
52284	Amends § 887.040, 1960 Code, parking, Market Street (Not codified)
52285	Parking, Delmar Boulevard (Not codified)
52286	Repeals line 12, page 1184, § 853.010, 1960 Code (Repealer)
52287	Repeals Ord. 50843 (Repealer)
52288	Repeals line 4, page 1262, § 888.030, 1960 Code (Repealer)
52289	Parking, Pine Street (Not codified)
52290	Parking, Ninth Street (Not codified)
52291	Stop intersection, Ninth Street and Walnut Street, Pine Street and Garrison Ave. (Not codified)
52292	Repeals Ord. 51018 (Repealer)
52293	Amends § 888.030, 1960 Code, parking, Gratiot Street (Not codified)
52294	Traffic-control signals, Eighteenth Street and Pine Street (Not codified)
52295	Designates Printz Ave. one-way street (Not codified)
52296	Stop intersection, Alfred Ave. and Wilcox Ave. (Not codified)
52297	Designates Beethoven Ave., Bingham Ave., Gannett Street, Itaska Street, Neosho Street, Osceola Street, Taft Ave. and Wallace Street one-way streets (Not codified)
52298	Amends § 888.010, 1960 Code, parking, Ninth Street (Not codified)
52299	Designates Glasgow Ave. one-way street (Not codified)
52300	Church stop, Grand Ave. and Lee Ave. (Not codified)
52301	Parking, Scott Ave. (Not codified)
52302	Parking, Theresa Ave. (Not codified)
52303	Parking, Wittenberg Ave. (Not codified)
52304	Amends § 851.010, 1960 Code, Vista Ave. one-way street (Not codified)
52305	Parking, Skinker Boulevard (Not codified)
52306	Amends § 888.040, 1960 Code, parking, Waterman Boulevard (Not codified)
52307	Parking, Skinker Boulevard (Not codified)
52308	Amends § 1, Ord. 51870, Austria Ave. one-way street (Not codified)
52309	Prohibits commercial vehicles, Austria Ave. (Not codified)
52310	Parking, Dahlia Ave. (Not codified)
52311	Prohibits commercial vehicles, Itaska Street and Gerritt Ave. (Not codified)
52312	Designates Gertrude Ave. one-way street (Not codified)
52313	Parking, Hodiamont Ave. (Not codified)
52314	Amends § 835.010, 1960 Code, leaving scene of accident (Repealed by 57831)
52315	Authorizes contracts for planning and construction of North and South Wildfowl Lakes (Special)
52316	Appropriation for hospitals (Special)
52317	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
52318	Amends district map 1960, changes zoning to "J" industrial district (Special)

52319	Prohibits parking meters, Hampton Ave. (17.62.380)
52320	Prohibits parking meters, Hampton Ave. (17.62.380)
52321	Sale of property (Special)
52322	Official city flag, repeals Ord. 43432 (1.20.010)
52323	Amends § 2116.1, adds §§ 2116.2, 2116.3 and 2116.4, 1960 Code, building demolition (Repealed by 56797)
52324	Vacates part Lorentz Street (Special)
52325	Provides for construction of sidewalks on Rosedale Ave., Clemens Ave. and Enright Ave. (Special)
52326	Sale of property (Special)
52327	Authorizes contracts for construction of Jefferson Ave. (Special)
52328	Adds Ch. 395, 1960 Code, fair housing (Repealed by 57173)
52329	Acquisition of property for hospital (Special)
52330	Appropriation for acquisition of property (Special)
52331	Adds § 263.051, 1960 Code, concrete worker bonds (20.26.160, 20.26.170)
52332	Improvement, Sutherland Ave. (Special)
52333	Vacates alley (Special)
52334	Vacates part Gratiot Street (Special)
52335	Vacates alley (Special)
52336	Vacates alley (Special)
52337	Vacates part McCausland Ave. (Special)
52338	Appropriation for demolishing unsafe buildings (Special)
52339	Vacates part Seventh Street, part Sixth Street, alleys, blocks 133, 135 and 110 (Special)
52340	Vacates alleys (Special)
52341	Vacates alley (Special)
52342	Vacates alley and Elm Street (Special)
52343	Fire lane, Cottage Ave. and alley (Not codified)
52344	Parking, Emergency Drive (Not codified)
52345	Parking, Aldine Ave. (Not codified)
52346	Stop intersection, Warne Ave. and Cote Brilliante Ave. (Not codified)
52347	Stop intersection, Labadie Ave. and Whittier Street (Not codified)
52348	Stop intersection, Aldine Ave. and Whittier Street (Not codified)
52349	Repeals line 7, page 1069, § 850.020, 1960 Code (Repealer)
52350	Amends § 887.040, 1960 Code, parking, Sarah Street (Not codified)
52351	Repeals line 12, page 1147, line 4, page 1151, § 850.030, 1960 Code (Repealer)
52352	Amends § 887.040, 1960 Code, parking, Gravois Ave. (Not codified)
52353	Stop intersection, Victor Street and Eighteenth Street (Not codified)
52354	Traffic-control signals, Knox Ave. and Manchester Ave. (Not codified)
52355	Parking, West Florissant Ave. (Not codified)
52356	Parking, Riverview Boulevard (Not codified)
52357	Amends § 851.010, 1960 Code, Laurel Street one-way street (Not codified)
52358	Traffic-control signals, Skinker Boulevard and Waterman Boulevard (Not codified)
52359	Parking, Skinker Boulevard (Not codified)
52360	Amends § 1, Ord. 51716, Rosedale Ave. one-way street (Not codified)
52361	Repeals line 10, page 1097, § 850.020, 1960 Code (Repealer)
52362	Parking, Hodiamont Ave. (Not codified)
52363	Repeals line 32, page 1093, line 32, page 1135, § 850.020, 1960 Code (Repealer)
52364	Repeals line 14, page 1223, § 887.010, 1960 Code (Repealer)
52365	Parking, Taylor Ave. (Not codified)

52366 Repeals line 26, page 1103, line 3, page 1132, § 850.020, 1960 Code (Repealer)

52367 Repeals line 1, page 1165, line 20, page 1166, § 850.040, 1960 Code (Repealer)

52368 Parking, Koscuisko Street (Not codified)

52369 Parking, West Florissant Ave. (Not codified)

52370 Repeals line 26, page 1069, line 30, page 1109, § 850.020, 1960 Code (Repealer)

52371 Vacates streets and alleys (Special)

52372 Vacates streets and alleys (Special)

52373 Vacates portion Soulard Street (Special)

52374 Vacates streets and alleys, block 742 (Special)

52375 Vacates alley (Special)

52376 Vacates Market Street (Special)

52377 Vacates streets and alleys (Special)

52378 Vacates part Market Street (Special)

52379 Vacates Tesson Street (Special)

52380 Authorizes lease of wharf to Slay Bulk Terminals, Inc. (Special)

52381 Amends district map 1960, changes zoning to "J" industrial district (Special)

52382 Amends district map 1960, changes zoning to "H" commercial district (Special)

52383 Parking, Ann Ave. (Repealed by 53767)

52384 Repeals line 19, page 1079, lines 7 and 9, page 1098a, lines 7, 12 and 14, page 1128, lines 11 and 13, page 1141, § 850.020, 1960 Code (Repealer)

52385 Designates DeGiverville Ave. one-way street (Not codified)

52386 Repeals line 25, page 1090, § 850.020, 1960 Code (Repealer)

52387 Amends § 888.040, parking, Hodiamont Ave. (Not codified)

52388 Designates Maple Ave. one-way street (Not codified)

52389 Fire lane, Bittner Street (Not codified)

52390 Parking, Muriel Street (Not codified)

52391 Repeals line 14, page 1264, § 888.030, 1960 Code (Repealer)

52392 Repeals line 8, page 1133, § 850.020, 1960 Code (Repealer)

52393 Repeals line 21, page 1276, § 888.040, 1960 Code (Repealer)

52394 Repeals line 21, page 1161, line 20, page 1163, § 850.040, 1960 Code (Repealer)

52395 Parking, Russell Boulevard (Not codified)

52396 Traffic-control signals, Macklind Ave. and Southwest Ave. (Not codified)

52397 Amends § 1, Ord. 52006, Hoffman Ave. one-way street (Not codified)

52398 Parking, Broadway (Not codified)

52399 Repeals lines 16 and 33, page 1071, line 9, page 1074, line 15, page 1082, line 7, page 1111, line 36, page 1116, line 1, page 1117, line 43, page 1136, § 850.020, 1960 Code (Repealer)

52400 Repeals line 7, page 1074, line 36, page 1078, § 850.020, 1960 Code (Repealer)

52401 Authorizes dedication part of Chain of Rocks Drive (Special)

52402 Authorizes contracts for remodeling fire station No. 42 (Special)

52403 Authorizes contracts for construction of fire station No. 21-29 (Special)

52404 Parking, Ohio Ave. (Not codified)

52405 Authorizes contracts for improvement of Jefferson Ave. (Special)

52406 Appropriation for St. Louis council on human relations (Special)

52407 Amends § 59.030, retirement system (4.16.145—4.16.180)

52408 Appropriation for improving Lansdowne Ave. (Special)

52409 Vacates part Parnell Street, authorizes sale thereof (Special)

52410 Vacates part Fourteenth Street, part alley, block 528, authorizes quit claim deed (Special)52411. Vacates part alley (Special)

52412 Vacates part Gerritt Street (Special)

52413 Establishes Park Ave. and park and playground area (Special)

52414 Amends § 2, Ord. 50495, conditional vacation, Seventh Street (Special)

52415 Appropriation for improvement, Lexington Ave. (Special)

52416 Repeals line 41, page 1140, § 850.020, 1960 Code (Repealer)

52417 Parking, Lexington Ave. (Not codified)

52418 Repeals line 25, page 1164, § 850.040, 1960 Code (Repealer)

52419 Stop intersection, Lexington Ave. and Norwood Ave. (Not codified)

52420 Regulates parking, Plainview Ave. (Not codified)

52421 Church stop, Tamm Ave. and Scanlan Ave. (Not codified)

52422 Traffic-control signals, Pernod Ave. and Watson Road (Not codified)

52423 Parking, Cleveland Ave. (Not codified)

52424 Repeals line 25, page 1082, line 22, page 1112, § 850.020, 1960 Code (Repealer)

52425 Parking, Quincy Street (Not codified)

52426 Stop intersection, Robert Ave. and Vermont Ave. (Not codified)

52427 Designates Schollmeyer Ave. one-way street (Not codified)

52428 Traffic-control signals, Cote Brilliante Ave. and Kingshighway Boulevard (Not codified)

52429 Designates Cote Brilliante Ave. one-way street (Not codified)

52430 Repeals line 3, page 1149, line 10, page 1154, § 850.030, 1960 Code (Repealer)

52431 Amends § 887.010, 1960 Code, parking, Carr Lane Ave. (Not codified)

52432 Traffic-control signals, Chouteau Ave., Manchester Ave. and Sarah Street (Not codified)

52433 Repeals line 20, page 1164, § 850.040, 1960 Code (Repealer)

52434 Designates Hereford Street one-way street (Not codified)

52435 Parking, Hampton Ave. (Not codified)

52436 Repeals line 36, page 1162, line 42, page 1163, line 4, page 1166, § 850.040, 1960 Code (Repealer)

52437 Designates Gurney Ave. one-way street (Not codified)

52438 Repeals line 14, page 1161, line 23, page 1163, § 850.040, 1960 Code (Repealer)

52439 Stop intersection, Eichelberger Street and Childress Ave. (Not codified)

52440 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

52441 Parking, San Francisco Ave. (Not codified)

52442 Parking, Natural Bridge Ave. (Not codified)

52443 Repeals lines 2 and 4, page 1267, § 888.030, 1960 Code (Repealer)

52444 Amends § 888.040, 1960 Code, parking, Wilcox Ave. (Not codified)

52445 Repeals line 31, page 1149, § 850.030, 1960 Code (Repealer)

52446 Amends § 851.010, 1960 code, Hunt Ave. one-way street (Not codified)

52447 Repeals line 14, page 1263, § 888.030, 1960 Code (Repealer)

52448 Prohibits commercial vehicles, Lackland Ave. (Not codified)

52449 Repeals line 18, page 1162, § 850.040, 1960 Code (Repealer)

52450 Church stop, Morgan Ford Road and Neosho Street (Repealed by 64090)

52451 Stop intersection, Itaska Street and Spring Ave. (Not codified)

52452 Repeals line 11, page 1154, line 25, page 1155, § 850.030, 1960 Code (Repealer)

52453 Stop intersection, Swan Ave. and Newstead Ave. (Not codified)

52454 Parking, Park Ave. (Not codified)

52455 Parking, Oleatha Ave. (Not codified)

52456 Stop intersection, Regal Place and Marquette Ave. (Not codified)

52457 School stop, McCausland Ave. and Mardel Ave. (Not codified)

52458 Parking, Lexington Ave. (Not codified)

52459 Repeals line 4, page 1282-E, § 888.040, 1960 Code (Repealer)

52460 Parking, Newstead Ave. (Not codified)

52461 Parking, Newstead Ave. (Not codified)

52462 Parking, West Pine Street (Not codified)

52463 Parking, Newstead Ave. (Not codified)

52464 Parking, West Pine Boulevard (Not codified)

52465 Designates San Francisco Ave. one-way street (Not codified)

52466 Parking, Palm Street (Not codified)

52467 Parking, Maffitt Ave. (Not codified)

52468 Designates Farlin Ave. one-way street (Not codified)

52469 Parking, Arco Ave. (Not codified)

52470 Parking, North Market Street, repeals § 1, Ord. 49880 (Not codified)

52471 Stop intersection, Montgomery Street and Garrison Ave. (Not codified)

52472 Repeals line 25, page 1173, § 851.010, 1960 Code (Repealer)

52473 Prohibits commercial vehicles, Ridge Ave. (Not codified)

52474 Amends § 2, Ord. 52149, parking at precinct polling places (Repealed by 57831)

52475 Amends § 3606.21, 1960 Code, projections into hoistway (Repealed by 56797)

52476 Stop intersection, Holly Hills Boulevard and Leona Street (Not codified)

52477 School stop, Koeln Ave. and Vermont Ave. (Not codified)

52478 Parking, Loughborough Ave. (Not codified)

52479 Designates Mardel Ave. one-way street (Not codified)

52480 Repeals Ord. 50745 (Repealer)

52481 Repeals line 22, page 1152, § 850.030, 1960 Code (Repealer)

52482 Stop intersection, Sullivan Ave. and Glasgow Ave. (Not codified)

52483 Designates Tenth Street one-way street (Not codified)

52484 Parking, Twenty-first Street and Rauschenbach Ave., repeals Ord. 51589 (Not codified)

52485 Parking, Park Ave. (Not codified)

52486 Repeals line 18, page 1165, § 850.040, 1960 Code (Repealer)

52487 Parking, Westminster Place (Not codified)

52488 Parking, Forest Park Ave., repeals Ord. 51489 (Not codified)

52489 Amends § 888.040, 1960 Code, parking, Natural Bridge Ave. (Not codified)

52490 Repeals line 31, page 1164, § 850.040, 1960 Code (Repealer)

52491 Amends § 887.040, 1960 Code, parking (Not codified)

52492 Stop intersection, Seins Street and Vermont Ave. (Not codified)

52493 Parking, Macklind Ave. (Not codified)

52494 Repeals lines 17 and 18, page 1161, line 31, page 1162, line 21, page 1165, § 850.040, 1960 Code (Repealer)

52495 Amends § 1, Ord. 51296, parking, Fyler Ave. (Not codified)

52496 Stop intersection, Pernod Ave. and Brannon Ave. (Not codified)

52497 Repeals line 32, page 1162, lines 3 and 11, page 1163, lines 16 and 17, page 1164, § 850.040, 1960 Code (Repeater)

52498 Repeals line 34, page 1163, § 850.040, 1960 Code (Repealer)

52499 Vacates part Thatcher Ave. (Special)

52500 Gifts to city officers or employees (15.02.010)

52501 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

52502 Appropriation for development of Lambert-St. Louis Municipal Airport (Special)

52503 Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Not codified)

52504 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Not codified)

52505 Appropriation for fighting streets and power plants (Special)

52506 Amends § 2126.1, 1960 Code, removal of unsafe buildings (Repealed by 56797)

52507 Amends § 3506.1, 1960 Code, defective wiring (Repealed by 56797)

52508 Amends table 10, 1960 Code, occupancy allowances (Repealed by 56797)

52509 Adds § 2905.26, 1960 Code, standpipes in parking structures (Repealed by 56797)

52510 Amends § 2905.22, 1960 Code, vehicle servicing (Repealed by 56797)

52511 Amends table 6, 1960 Code, height and area limitations (Repealed by 56797)

52512 Amends §§ 3213.12, 3213.13 and 3213.15, 1960 Code, automatic sprinkler systems (Repealed by 56797)

52513 Amends § 2401.0, 1960 Code, public garage and open skeleton parking structures defined (Repealed by 56797)

52514 Amends §§ 2415.0, 2415.12, 2415.13, 2415.14, 2415.2, 2415.21, 2415.22, 2415.23 and 2415.6, 1960 Code, public garages, repeals § 2415.11, 1960 Code (Repealed by 56797)

52515 Amends appendix B, 1960 Code, accepted engineer practice (Repealed by 56797)

52516 Authorizes transfer to state department of public health and welfare property (Special)

52517 Sale of property (Special)

52518 Appropriation for acquisition of land (Special)

52519 Authorizes quit claim deed to University Heights Central Redevelopment Corporation (Special)

52520 Appropriation for circuit court (Special)

52521 Authorizes contracts for improvement of O'Falon Park (Special)

52522 Authorizes contract for public improvements (Special)

52523 Appropriation for damages (Special)

52524 Authorizes contracts for improvements in Cherokee Rehabilitation Area (Special)

52525 Establishes park (Special)

52526 Vacates part St. George Street (Special)

52527 Vacates Barry Street, Miller Street, Broadway and alleys, blocks 697 and 267 (Special)

52528 Vacates alley (Special)

52529 Vacates streets and alleys in Kosciusko Area (Special)

52530 Vacates part Shenandoah Ave., Ann Ave., Russell and Broadway (Special)

52531 Vacates streets and alleys, block 2226, repeals Ords. 49809 and 50054 (Special)

52532 Sale of property (Special)

52533 Sale of property (Special)

52534 Sale of property (Special)

52535 Amends district map 1960, changes zoning to "G" commercial district (Special)

52536 Appropriation for comptroller and license collector (Special)

52537 Authorizes agreement with St. Louis Metropolitan Chamber of Commerce Industrial Park Corp. (Special)

52538 Directs issuance of bonds (Special)

52539 Sale of property (Special)

52540 Adds §§ 2523.1—2523.5, window cleaning safeguards, repeals § 2523.0, 1960 Code (Repealed by 56797)

52541 Names St. Louie Planetarium, "The McDonnell Planetarium" (22.44.170)

52542 Vacates alley (Special)

52543 Vacates parts Clark Ave., Sixth Street, Seventh Street, Elm Street and alley, block 134 (Special)

52544 Vacates alley (Special)

52545 Vacates streets and alleys in Mill Creek Valley Project (Special)

52546 Authorizes contracts for construction of sewer in Scott Ave. (Special)

52547 Vacates part Gravois Ave. (Special)

52548 Vacates alley (Special)

52549 Authorizes contracts for alteration at engine house No. 2 and repair shop (Special)

52550 Authorizes contracts for construction of parking facilities (Special)

52551 Authorizes agreement with Land Clearance for Redevelopment Authority for assistance with displaced families (Special)

52552 Storing vehicle on lots (Ch. 8.70)

52553 Repeals lines 2 and 3, page 1122, line 20, page 1141, § 850.020, 1960 Code (Repealer)

52554 Designates Eads Ave. one-way street (Not codified)

52555 Traffic control signals (Not codified)

52556 Amends § 851.010, 1960 Code, Eighth Street one-way street (Not codified)

52557 Amends § 850.060, 1960 Code, Broadway one-way street, repeals Ord. 51000 (Not codified)

52558 Amends § 1, Ord. 51984, Fourth Street one-way street (Not codified)

52559 Amends § 851.010, 1960 Code, St. Charles Street one-way street (Not codified)

52560 Amends § 851.010, 1960 Code, Sixth Street one-way street (Not codified)

52561 Amends § 851.020, 1960 Code, alleys in district of Franklin Ave. one way (Not codified)

52562 Designates St. Vincent Ave. one-way street (Not codified)

52563 Repeals line 27, page 1127, § 850.020, 1960 Code (Repealer)

52564 Traffic-control signals, Page Boulevard and Pendleton Ave. (Not codified)

52565 Parking, Blase Ave. (Not codified)

52566 Parking, Glasgow Ave. (Not codified)

52567 Repeals line 26, page 1086, lines 38 and 41, page 1122, line 27, page 1126, line 19, page 1139, § 850.020, 1960 Code (Repealer)

52568 Stop intersection, Lindenwood Ave. and Brannon Ave. (Not codified)

52569 School stop, Grand Ave. and Osceola Street (Repealed by 53653)

52570 Stop intersection, Castleman Ave. and Klemm Street (Not codified)

52571 Repeals line 8, page 1162, line 18, page 1163, § 850.040, 1960 Code (Repealer)

52572 Parking, Natural Bridge Ave. (Not codified)

52573 Stop intersection, Lawrence Street and Botanical Ave. (Not codified)

52574 Stop intersection, Lawrence Street and Flora Place (Not codified)

52575 Parking, Carter Ave. (Not codified)

52576 Stop intersection, Warne Ave. and Carter Ave. (Not codified)

52577 Parking, Park Ave., repeals Ord. 51942 (Repealed by 52799)

52578 Vacates alley (Special)

52579 Vacates walkway (Special)

52580 Vacates alleys (Special)

52581 Parking, Thekla Ave. (Not codified)

52582 Repeals line 42, page 1069, line 8, page 1074, line 13, page 1097, line 34, page 1110, line 19, page 1111, line 19, page 1121, line 5, page 1125, lines 22 and 26, page 1127, line 18, page 1134, § 850.020, 1960 Code (Repealer)

52583 Parking, Farlin Ave. (Not codified)

52584 Parking, Plover Ave. (Not codified)

52585 Parking, Natural Bridge Ave. (Not codified)

52586 Amends § 888.040, 1960 Code, parking, Natural Bridge Ave. (Not codified)

52587 Amends § 887.040, 1960 Code, parking, Natural Bridge Ave. (Not codified)

52588 Stop intersection, Maffitt Ave. and Lambdin Ave. (Not codified)

52589 Repeals line 1, page 115, § 850.030, 1960 Code (Repealer)

52590 Parking, Gravois Ave. (Not codified)

52591 Repeals line 36, page 1153, § 850.030, 1960 Code (Repealer)

52592 School stop, Clay Ave. and Ashland Ave. (Not codified)

52593 Repeals line 17, page 1160, § 850.030, 1960 Code (Repealer)

52594 Repeals line 20, page 1153, § 850.030, 1960 Code (Repealer)

52595 Amends § 851.010, 1960 Code, Genevieve Ave. one-way street (Not codified)

52596 Amends § 887.010, 1960 Code, parking, Bircher Boulevard (Not codified)

52597 Stop intersection, Klemm Street and McRee Ave. (Not codified)

52598 Stop intersection, North Market Street and Goode Ave. (Not codified)

52599 Parking, Prange Ave. (Not codified)

52600 Parking, Prange Ave. (Not codified)

52601 Parking, Riverview Boulevard (Not codified)

52602 School stop, Riverview Boulevard and Harney Ave. (Not codified)

52603 Parking, Robin Ave. (Not codified)

52604 Repeals line 28, page 1162, line 4, page 1164, line 8, page 1165, line 2, page 1166, § 850.040, 1960 Code (Repealer)

52605 Amends § 851.010, 1960 Code, designates Sutherland Ave. one-way street (Not codified)

52606 Amends § 887.040, 1960 Code, parking, Hampton Ave. (Not codified)

52607 Amends § 887.010, 1960 Codi:, parking, Hampton Ave. (Not codified)

52608 Parking, Spring Ave. (Not codified)

52609 Parking, Lansdowne Ave. (Not codified)

52610 Repeals line 1, page 1277, § 888.040, 1960 Code (Repealer)

52611 Repeals line 22, page 1149, § 850.030, 1960 Code (Repealer)

52612 School stop, Rutger Street and Ewing Ave. (Not codified)

52613 Designates Harris Ave. one-way street (Not codified)

52614 Repeals line 10, page 1099, § 850.020, 1960 Code (Repealer)

52615 Parking, Sullivan Ave. (Not codified)

52616 Parking, Benton Street (Not codified)

52617 Traffic-control signals, Broadway and North Market Street (Not codified)

52618 Repeals Ord. 51762 (Repealer)

52619 Repeals Ord. 51118 (Repealer)

52620 Parking, Riverview Boulevard (Not codified)

52621 Amends § 851.020, 1960 Code, Wren Ave. one-way street (Not codified)

52622 Authorizes contracts for improvement of park area (Special)

52623 Amends § 4, Ord. 50654, conditional vacation, Hadley Street (Special)

52624 Amends Ord. 50373, cooperation agreement with Land Clearance for Redevelopment Authority for downtown sports stadium project (Special)

52625 Authorizes contracts for planning and construction of flood control reaches 3 and 4 (Special)

52626 Authorizes contracts for development of park (Special)

52627 Authorizes contracts for street lighting (Special)

52628 Authorizes contracts for planning and construction at Tower Grove Park (Special)

52629 Appropriation for acquiring rights of way for various expressways (Special)

52630 Authorizes contract for public improvements (Special)

52631 Authorizes contracts for public improvements (Special)

52632 Parking, Jefferson Ave. (Not codified)

52633 Repeals line 15, page 1165, § 850.040, 1960 Code (Repealer)

52634 Repeals line 29, page 1114, § 850.020, 1960 Code (Repealer)

52635 Parking, Broadway (Not codified)

52636 Parking, Julia Street (Not codified)

52637 Traffic-control signals, Jefferson Ave. and Rutger Street (Not codified)

52638 Parking, Fourteenth Street (Not codified)

52639	Repeals line 28, page 1076, § 850.020, 1960 Code (Repealer)
52640	Repeals line 3, page 1158, § 850.030, 1960 Code (Repealer)
52641	Repeals line 22, page 1072, line 20, page 1087, line 9, page 1094, line 18, page 1114a, line 1, page 1116, lines 19 and 42, page 1122, line 30, page 1128, line 1, page 1133, § 850.020, 1960 Code (Repealer)
52642	Designates St. Vincent Ave. one-way street (Not codified)
52643	Parking, Seventh Boulevard (Not codified)
52644	Parking, Dorcas Street (Not codified)
52645	Repeals line 18, page 1084, line 28, page 1110, line 35, page 1131, § 850.020, 1960 Code (Repealer)
52646	Amends § 887.030, 1960 Code, parking, Papin Street (Not codified)
52647	Amends § 888.030, 1960 Code, parking, Eighth Street (Not codified)
52648	Traffic-control signals, Arsenal Street and Broadway (Not codified)
52649	Stop intersection, East Third Street and Gratiot Street (Not codified)
52650	Repeals line 38, page 1153, § 850.030, 1960 Code (Repealer)
52651	Traffic-control signals, Seventh Boulevard, Park Ave., Broadway and Miller Street (Not codified)
52652	Repeals line 9, page 1071, line 20, page 1077, § 850.020, 1960 Code (Repealer)
52653	Parking, Ninth Street (Not codified)
52654	Repeals line 12, page 1133, § 850.020, 1960 Code (Repealer)
52655	Parking, St. Ange Ave. (Not codified)
52656	Parking, St. Ange Ave. (Not codified)
52757	Stop intersection, Soulard Street and Second Street (Not codified)
52658	Parking, Third Street (Not codified)
52659	Authorizes contracts for street construction (Special)
52660	Parking, Picker Street (Not codified)
52661	Parking, Sublette Ave. (Not codified)
52662	Repeals line 19, page 1077, § 850.020, 1960 Code (Repealer)
52663	Parking, Sarah Street, repeals lines 3 and 4, page 1251g(8-1-62), § 887.040, 1960 Code (Not codified)
52664	Parking, Compton Ave. and Arsenal Street (Not codified)
52665	Fire lane, Crittenden Street (Not codified)
52666	Parking, Fourth Street (Not codified)
52667	Parking, Fourth Street (Not codified)
52668	Parking, Clinton Street (Not codified)
52669	Amends § 888.040, 1960 Code, parking, Hartford Street (Not codified)
52670	Amends § 1, Ord. 50403, parking, Jefferson Ave. (Not codified)
52671	Parking, St. George Street (Not codified)
52672	Parking, Bellerive Boulevard traffic divider, repeals Ord. 51472 (Not codified)
52673	Stop intersection, Penrose Street and Taylor Ave. (Not codified)
52674	Stop intersection, Geraldine Ave. and Lexington Ave. (Not codified)
52675	Parking, Lafayette Ave. (Not codified)
52676	Repeals lines 7 and 8, page 1261, § 888.030, 1960 Code (Repealer)
52677	Parking, Hamilton Ave. (Not codified)
52678	Parking, Natural Bridge Ave. (Repealed by 53014)
52679	Parking, Southwest Ave. (Not codified)
52680	Parking, Mitchell Ave. (Not codified)
52681	Parking, Oakland Ave. (Not codified)
52682	Amends § 887.040, 1960 Code, parking, Waldemar Ave. (Not codified)
52683	Parking, Southwest Ave. (Not codified)
52684	Prohibits commercial vehicles, January Ave (Not codified)
52685	Prohibits commercial vehicles, Hughes Place (Not codified)
52686	Parking, Blendon Place (Not codified)
52687	Designates Botanical Ave. one-way street (Not codified)

52688 Parking, Cairns Place (Not codified)

52689 Stop intersection, Texas Ave. and Wyoming Street, repeals line 44, page 1158, § 850.030, 1960 Code (Not codified)

52690 Stop intersection, Michigan Ave. and Pestalozzi Street (Not codified)

52691 Repeals line 20, page 1071, line 29, page 1082, § 850.020, 1960 Code (Repealer)

52692 Amends § 887.030, 1960 Code, parking, Arsenal Street (Not codified)

52693 Amends § 852.010, 1960 Code, prohibits commercial vehicles, Taft Ave. (Not codified)

52694 Amends § 852.010, 1960 Code, prohibits commercial vehicles, Osceola Street (Not codified)

52695 Amends § 852.010, 1960 Code, prohibits commercial vehicles, Neosho Ave. (Not codified)

52696 Amends § 852.010, 1960 Code, prohibits commercial vehicles, Bingham Ave. (Not codified)

52697 Prohibits commercial vehicles, Thirty-ninth Street (Not codified)

52698 Parking, Wabada Ave. (Not codified)

52699 Amends § 887.010, 1960 Code, parking, Geraldine Ave. (Not codified)

52700 Amends § 888.040, 1960 Code, parking, Natural Bridge Ave. (Not codified)

52701 Parking, Natural Bridge Ave. (Not codified)

52702 Parking, Pershing Ave. (Not codified)

52703 Parking, Skinker Boulevard (Not codified)

52704 Amends § 888.040, 1960 Code, parking, Broadway (Not codified)

52705 Amends district map 1960, changes zoning to "K" unrestricted district (Special)

52706 Amends district map 1960, changes zoning to "J" industrial district (Special)

52707 Authorizes contracts for forestry work in rehabilitation areas (Special)

52708 Authorizes contracts for streets and alleys and lighting in rehabilitation areas (Special)

52709 Appropriations for current expenses (Special)

52710 Adds ch. 149, 1960 Code, tax levies, repeals chs. 149 and 150, 1960 Code (5.26.010—5.26.050)

52711 Appropriation for additional tree trimming (Special)

52712 Designates Phillips Place one-way street (Not codified).

52713 Designates Missouri Ave. one-way street (Not codified)

52714 Amends district map 1960, changes zoning to "F" local business district (Special)

52715 Vacates alley (Special)

52716 Vacates alley (Special)

52717 Vacates part Fourteenth Street (Special)

52718 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

52719 Amends district map 1960, changes zoning to "F" local business district (Special)

52720 Improvement, Blow Street (Special)

52721 Amends Ord. 49939, addition to Lambert-St. Louis Municipal Airport (18.04.030F)

52722 Amends §§ 5 and 6, Ord. 52552, storing vehicles (Ch. 8.70)

52723 Vacates part Clark Ave., alleys, blocks 2200 and 2199 (Special)

52724 Adds § 2419.8, 1960 Code, sprinklers in basements (Repealed by 56797)

52725 Stop intersection, Pennsylvania Ave. and Winnebago Street (Not codified)

52726 Repeals lines 1 and 2, page 1269, § 888.030, 1960 Code (Repealer)

52727 Repeals line 4, page 1266, § 888.030, 1960 Code (Repealer)

52728 Parking, Wharf Street (Not codified)

52729 Stop intersection, Goodfellow Boulevard and Cabanne Ave. (Not codified)

52730 Parking, Goodfellow Boulevard (Repealed by 53822)

52731 Repeals line 16, page 1253, § 888.010, 1960 Code (Repealer)

52732 Amends district map 1960, changes zoning to "H" commercial district (Special)

52733 Amends district map 1960, changes zoning to "D"multiple-family dwelling district (Special)

52734 Vacates part Walnut Street, alley, block 84 (Special)

52735 Amends § 186.010, adds §§ 186.040 and 186.050, 1960 Code, public defenders (3.16.010, 3.16.050, 3.16.060)

52736 Authorizes contracts for planning and construction at Tower Grove Park (Special)

52737 Sale of property (Special)

52738 Sale of property (Special)

52739 Establishes land as part of Mississippi River flood control protection project (Special)

52740 Appropriation for board of election (Special)

52741 Amends §§ 49.020, 49.030, 1960 Code, appointment and salaries of city treasurer employees (4.26.020, 4.26.030)

52742 Compensation plan and duty schedule for parking meter division personnel (4.30.010)

52743 Amends §§ 19 and 21, Ch. 2, 1948 Code, board of aldermen employee salaries, repeals Ords. 45486, 45559, 46336, 48611, 50052 (Repealed by 53377)

52744 Coroner and morgue employees appointment and salaries, repeals Ord. 50951 (4.42.010)

52745 Amends Ch. 54, 1960 Code, sheriff office employees (Ch. 4.36)

52746 Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)

52747 Construction of sidewalk on Fourteenth Street (Special)

52748 Designates block 3180, Carondelet Lions Park (22.44.180)

52749 Vacates Barry Street (Special)

52750 Vacates part Seventh Boulevard (Special)

52751 Amends § 53.010, 1960 Code, recorder of deeds employee appointment and salaries (Ch. 4.34)

52752 Amends § 2, Ord. 45669, license collector salaries (4.28.010)

52753 License collector auditor salaries (Ch. 4.28)

52754 Vacates part Wabash Ave. (Special)

52755 Authorizes dedication part Nottingham Ave., land in blocks 5033 and 5034 (Special)

52756 Establishes Dwight Davis Park, vacates part Oriole Ave., Gilmore Ave. and alley, block 5392 (Special)

52757 Authorizes quit claim deed to land clearance for redevelopment authority (Special)

52758 Appropriation for relief of Private John Gubser (Special)

52759 Amends § 1, Ord. 52337, vacates part McCausland Ave. (Special)

52760 Vacates Taylor Ave. (Special)

52761 Vacates part Pine Street, Leffingwell Ave., alleys, blocks 990, 991 and 987 (Special)

52762 Vacates part Steins Street, alley, block 3077 (Special)

52763 Amends § 2, Ord. 50966, vacates part Oriole Ave., Gillmore Ave., alleys, blocks 5353 and 5392 (Special)

52764 Classified service and compensation plan (Ch. 4.10)

52765 Vacates part Seventh Street, alley, block 166 (Special)

52766 Vacates alley (Special)

52767 Vacates Spruce Street (Special)

52768 Vacates alley (Special)

52769 Vacates alley (Special)

52770 Vacates Rutger Street, part Sixth Street, alleys, blocks 691 and 697 (Special)

52771	Vacates Seventeenth Street and Walnut Street, repeals Ord. 50590 (Repealed by 54747)
52772	Ratifies grant agreement project No. 9-23-034-C418, contract No. FA-64CE-2926 (Special)
52773	Appropriation for acquiring rights of way for various expressways (Special)
52774	Amends district map 1960, changes zoning to "F" local business district (Special)
52775	Amends § 157.030, 1960 Code, license application, repeals § 157.060, 1960 Code (8.76.030)
52776	Appropriation for development of Lambert-St. Louis Municipal Airport (Special)
52777	Appropriation for hangar at Lambert-St. Louis Municipal Airport (Special)
52778	Amends Ord. 51034, amendatory agreement with Transurban Redevelopment Corp. (Special)
52779	Authorizes contracts with U. S. Post Office for lease of land at Lambert-St. Louis Municipal Airport (Special)
52780	Amends § 151.020, 1960 Code, license collector employee salaries (8.10.020)
52781	Establishes addition to Lambert-St. Louis Municipal Airport (18.04.030G)
52782	Amends Ord. 50224, appropriation for development at Lambert-St. Louis Municipal Airport (Special)
52783	Amends § 9, Ord. 52030, license payment (8.06.080)
52784	Approves urban renewal plan for Grandel Urban Renewal Area (Special)
52785	Authorizes cooperation agreement with land clearance for redevelopment authority for development of Grandel Urban Renewal Area (Special)
52786	Driver training instruction near parks or schools (Repealed by 57831)
52787	Stop intersection, Louisiana Ave. and Eads Ave. (Not codified)
52788	Stop intersection, Twentieth Street and John Ave. (Not codified)
52789	Stop intersection, St. Louis Ave. and Whittier Street (Not codified)
52790	Stop intersection, Fourteenth Street and Howard Street (Not codified)
52791	Stop intersection, Whittier Street and Garfield Ave. (Not codified)
52792	Amends § 888.040, 1960 Code, parking, Lexington Ave. (Not codified)
52793	Prohibits commercial vehicle, Kossuth Ave. (Not codified)
52794	Amends § 832.050, 1960 Code, speed limit, Kossuth Ave. (Repealed by 57831)
52795	Repeals lines 10 and 11, page 1259, § 888.030, 1960 Code (Repealer)
52796	Prohibits commercial vehicles, Labadie Ave. (Not codified)
52797	Repeals line 2, page 1247, § 887.040, 1960 Code (Repealer)
52798	Amends § 887.050, 1960 Code, parking, West Pine Boulevard (Not codified)
52799	Parking, Park Ave., repeals Ord. 52577 (Not codified)
52800	Stop intersection, Ohio Ave. and Caroline Street (Not codified)
52801	Designates Vista Ave. one-way street (Not codified)
52802	Stop intersection, Klemm Street and Blaine Ave. (Not codified)
52803	Stop intersection, Prague Ave. and Devonshire Ave. (Not codified)
52804	Stop intersection, Mardel Ave. and Sulphur Ave. (Not codified)
52805	Stop intersection, Grand Boulevard and North Market Street (Not codified).
52806	Traffic-control signals, Grand Boulevard and North Market Streets (Not codified)
52807	Prohibits commercial vehicle, Vernon Ave. (Not codified)
52808	Designates Vernon Ave. one-way street repeals Ord. 51001 (Not codified)
52809	School stop, Euclid Ave. between Fountain Ave. and Maple Ave. (Not codified)

52810 Repeals line 31, page 1090, line 42, page 1104, line 45, page 1117, line 24, page 1140, line 29, page 1143, § 850.020, 1960 Code (Repealer)

52811 Prohibits commercial vehicle, Patton Ave. (Not codified)

52812 Repeals Ord. 51972 (Repealer)

52813 Parking, Euclid Ave. (Not codified)

52814 Adds §§ 41.040 and 41.050, 1960 Code, duties of officers and employees (Ch. 4.02)

52815 Amends § 826.050, 1960 Code, colored lights on vehicles (Repealed by 57831)

52816 Stop intersection, Des Peres Ave. and Kingsbury Ave. (Not codified)

52817 Stop intersection, Hodiamont Ave. and Etzel Ave. (Not codified)

52818 Stop intersection, Eads Ave. and Louisiana Ave. (Not codified)

52819 Sale of property (Special)

52820 Improvement of alley (Special)

52821 Vacates part alley (Special)

52822 Vacates John Ave. (Special)

52823 Prohibits commercial vehicles, Blackstone Ave. (Not codified)

52824 Designates Burd Ave. one-way street (Not codified).

52825 Designates Clara Ave. one-way street (Not codified)

52826 Designates alley, block 2911 one-way street (Not codified)

52827 Repeals lines 10 and 11, page 1282g, § 888.050, 1960 Code (Repealer)

52828 Designates Lisette Ave. one-way street (Not codified)

52829 Playground stop, David Street and Minnesota Ave. (Not codified)

52830 Repeals lines 2 and 3, page 1240, § 887.040, 1960 Code (Repealer)

52831 Repeals line 17, page 1240, § 887.040, 1960 Code (Repealer)

52832 Parking, Bischoff Ave. (Not codified)

52833 Repeals line 11, page 1075, line 24, page 1085, line 40, page 1112, § 850.020, 1960 Code (Repealer)

52834 Repeals line 18, page 1276, § 888.040, 1960 Code (Repealer)

52835 Amends § 888.010, 1960 Code, parking, Broadway (Not codified)

52836 Parking, Lynch Street (Not codified)

52837 Parking, Oregon Ave. and Pestalozzi Street (Not codified)

52838 School stop, Holly Hills Ave. and Minnesota Ave. (Not codified)

52839 Parking, Pestalozzi Street (Not codified)

52840 Parking, Wyoming Street (Not codified)

52841 Repeals lines 1 and 26, page 1166, § 850.040, 1960 Code (Repealer)

52842 Amends § 888.030, 1960 Code, parking, Sidney Street (Not codified)

52843 Repeals lines 1 and 2, page 128 1, § 888.040, 1960 Code (Repealer)

52844 Amends § 888.030, 1960 Code, parking, Belt Ave. (Not codified)

52845 Parking, Clara Ave., repeals line 5, page 1277, § 888.040, 1960 Code (Not codified)

52846 Parking, Belt Ave., repeals lines 12 and 13, page 1258, § 888.030, 1960 Code (Not codified)

52847 Prohibits commercial vehicles, Blackstone Ave. (Not codified)

52848 Prohibits commercial vehicles, Essex Place (Not codified)

52849 Stop intersection, Lawrence Ave. and McRee Ave. (Not codified)

52850 Prohibits commercial vehicles, Labadie Ave. (Not codified)

52851 Amends § 888.040, 1960 Code, parking, Palm Street (Not codified)

52852 Parking, underneath city hall and municipal courts building and area near City Hall, repeals Ord. 52091 (Ch. 17.54) (Repealed by 55422)

52853 Appropriation for construction of Lookout Drive subdistrict sewer No. 192 (Special)

52854 Repeals line 6, page 1273, § 888.030, 1960 Code (Repealer)

52855	Prohibits commercial vehicles, Clara Ave. (Not codified)
52856	Stop intersection, Belt Ave. and Cote Brilliante Ave. (Not codified)
52857	Parking, Burd Ave. (Not codified)
52858	Appropriation for traffic-control purposes (Special)
52859	Appropriation for construction of office building and garage for traffic division (Special)
52860	Authorizes contracts for construction of dock (Special)
52861	Establishes off street parking lot (Special)
52862	Sale of property (Special)
52863	Prohibits commercial vehicles, Minerva Ave. (Not codified)
52864	Sale of property to Metropolitan St. Louis Sewer District (Special)
52865	Sale of property (Special)
52866	Amends district map 1960, changes zoning to "F" local business district (Special)
52867	Amends district map 1960, changes zoning to "F" local business district (Special)
52868	Amends Ord. 52630, authorizes contracts for public improvements (Special)
52869	Vacates Mount Pleasant Street (Special)
52870	Parking, Grand Ave. (Not codified)
52871	Amends §§ 101.020 and 101.030, 1960 Code, contracts for emergency work (6.08.020, 6.08.030)
52872	Authorizes contract with Bi-State Development Agency for Parks Metropolitan Airport (Special)
52873	Appropriation for payment to Bi-State Development Agency (Special)
52874	Establishes Southwest Ave. (Special)
52875	School stop, Hornsby Ave. and Church Road (Not codified)
52876	Designates Kennerly Ave. one-way street (Not codified)
52877	Vacates part Clark Ave., alley, block 2199 (Special)
52878	Authorizes grant of easement to Metropolitan St. Louis Sewer District (Special)
52879	Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Special)
52880	Amends district map 1960, changes zoning to "A" single-family dwelling district (Special)
52881	Establishes park, authorizes acquisition of property (Special)
52882	Amends § 1, Ord. 52249, parking, Oak Hill Ave. (Not codified)
52883	School stop, Spring Ave. and Flad Ave. (Not codified)
52884	Designates Connecticut Street one-way street (Not codified)
52885	Amends § 887.040, 1960 Code, parking, Morgan Ford Road (Not codified)
52886	Parking, Thirty-ninth Street (Not codified)
52887	Stop intersection, North Market Street and Leffingwell Ave. (Not codified)
52888	Parking, Spring Ave. (Not codified)
52889	Parking, Spring Ave. (Not codified)
52890	Amends Ord. 51684, addition to Lambert-St. Louis Municipal Airport (Special) (18.04.030H)
52891	Amends district map 1960, changes zoning to "F" local business district (Special)
52892	Amends district map 1960, changes zoning to "C" multiple-family district (Special)
52893	Construction of sidewalk (Special)
52894	Construction of sidewalk (Special)
52895	Construction of sidewalk (Special)
52896	Authorizes acceptance of fountain (Special)
52897	Submits proposed amendments to charter to voters (Charter Art. IV)
52898	Vacates alley (Special)

52899	Establishes area for all city offices (3.56.050—3.56.090)
52900	Appropriation to planning and construction of workhouse (Special)
52901	Authorizes contract with State Highway Commission for movable medians and traffic regulatory devices on state highways (Special)
52902	Repeals line 1, page 1272, § 888.030, 1960 Code (Repealer)
52903	Traffic-control signals, Easton Ave. and Whittier Street (Not codified)
52904	Repeals Ord. 52562 (Repealer)
52905	Repeals line 40, page 1164, § 850.040, 1960 Code (Repealer)
52906	Parking, Watson Road (Not codified)
52907	Parking, Itaska Street (Not codified)
52908	Parking, Bischoff Ave. (Not codified)
52909	Parking, Berthold Ave. (Not codified)
52910	Repeals Ord. 50299 (Repealer)
52911	Repeals line 33, page 1150, § 850.030, 1960 Code (Repealer)
52912	Stop intersection, DeTonty Ave. and Thurman Ave. (Not codified)
52913	Parking, Boyle Ave. (Not codified)
52914	Parking, Ulena Ave. (Not codified)
52915	Parking, Kingshighway Boulevard (Not codified)
52916	Stop intersection, Newport Ave. and Neosho Street (Not codified)
52917	Amends § 888.040, 1960 Code, parking, Gustine Ave. (Not codified)
52918	Stop intersection, Lansdowne Ave. and Ellenwood Ave. (Not codified)
52919	Prohibits commercial vehicles, Alexander Street (Not codified)
52920	Designates Gresham Ave. one-way street (Not codified)
52921	Church stop, Meramec Street and Hydraulic Ave. (Not codified)
52922	Amends § 887.040, 1960 Code, parking, Ulena Ave. (Not codified)
52923	Repeals line 4, page 1251f, § 887.040, 1960 Code (Repealer)
52924	Amends § 888.020, 1960 Code, parking, Spring Ave. (Not codified)
52925	Amends § 887.040, 1960 Code parking, California Ave. (Not codified)
52926	Amends § 887.040, 1960 Code, parking, Ranken Ave. (Not codified)
52927	Repeals line 2, page 1240, § 887.030, 1960 Code (Repealer)
52928	Parking, Chouteau Ave. (Not codified)
52929	School stop, Swan Ave. and Boyle Ave. (Not codified)
52930	Parking, Folsom Ave. (Not codified)
52931	Parking, Park Ave. (Not codified)
52932	Parking, Klemm Street (Not codified)
52933	Repeals line 1, page 1209, § 887.010, 1960 Code (Repealer)
52934	Names walkway "Hoover Way" (Special)
52935	Authorizes grant of easement for sewer (Special)
52936	Authorizes board of commissioners of the Bryan Mullanphy Immigrant and Traveler's Relief Fund to sell permanent easement (Special)
52937	Authorizes contracts for improvement of Grand Ave., Arsenal Street and Chouteau Ave. (Special)
52938	Establishes Grand Boulevard (Special)
52939	Sale of property (Special)
52940	Approves urban renewal plan for West End Urban Renewal Area (Special)
52941	Authorizes cooperation agreement with land clearance for redevelopment authority for West End Urban Renewal Project (Special)
52942	Vacates alley (Special)
52943	Vacates part Euclid Ave. and West Papin Street (Special)
52944	Repeals § 29-152, Ord. 52030 (Repealer)
52945	Walk lights at Hampton Ave. and Loughborough Ave. (Repealed by 57831).
52946	Sale of property (Special)

52947	Prohibits abandoned automobiles, adds Ch. 289, 1960 Code (Repealed by 56910)
52948	Stop intersection, Bingham Ave. and Gravois Ave. (Not codified)
52949	Appropriation for acquisition of land for park (Special)
52950	Relief of Shay Investment Corp. (Special)
52951	Amends § 351.040, 1960 Code, weighing fees (9.04.040)
52952	Creates Dwight F. Davis Tennis Tournament Center and fund (Ch. 22.36)
52953	Prohibits commercial vehicle, Hamilton Ave. (Not codified)
52954	Amends § 887.030, 1960 Code, parking, North Court (Not codified)
52955	Parking, Walton Ave. (Not codified)
52956	Amends § 887.030, 1960 Code, parking, DeBaliviere Ave. (Not codified)
52957	Parking, West Pine Boulevard (Not codified)
52958	Amends § 887.010, 1960 Code, parking, Euclid Ave. (Not codified)
52959	Stop intersection, Walton Ave. and McPherson Ave. (Not codified)
52960	Parking, Delmar Boulevard (Not codified)
52961	Parking, Delmar Boulevard (Not codified)
52962	Amends § 887.010, 1960 Code, parking, Geraldine Ave. (Not codified)
52963	Parking, Goodfellow Boulevard (Not codified)
52964	Parking, Goodfellow Boulevard (Not codified)
52965	Parking, Theodore Ave. (Not codified)
52966	Repeals line 8, page 1277, § 888.030, 1960 Code (Repealer)
52967	Stop intersection, Woodstock Ave. and Lilian Ave. (Not codified)
52968	Parking, Riverview Boulevard (Not codified)
52969	Parking, Olive Street (Not codified)
52970	Parking, Waterman Ave. (Not codified)
52971	Parking, Lindell Boulevard (Not codified)
52972	Repeals line 3, page 1268, § 888.030, 1960 Code (Repealer)
52973	Parking, Geraldine Ave. (Not codified)
52974	Parking, Geraldine Ave. (Not codified)
52975	Amends § 888.030, 1960 Code, parking, Geraldine Ave. (Not codified)
52976	Parking, Forest Park Ave. (Not codified)
52977	Amends § 887.010, 1960 Code, parking, Lindell Boulevard (Not codified)
52978	Traffic-control signals, Hospital Drive, Kingshighway Boulevard and Barnes Hospital Memorial Plaza (Not codified)
52979	Traffic-control signals, Pershing Ave. and Union Boulevard (Not codified)
52980	Amends § 29-77, Ord. 52030, licensing independent embalming contractors (Repealed by 60735)
52981	Amends district map 1960, changes zoning to "J" industrial district (Special)
52982	Vacates part Connecticut Street (Special)
52983	Establishes alleys (Special)
52984	Construction of sidewalk (Special)
52985	Establishes park, authorizes acquisition of land (Special)
52986	Authorizes contracts for improvement of parks (Special)
52987	Vacates streets and alleys (Special)
52988	Vacates alley (Special)
52989	Vacates Broadway and Lami Street (Special)
52990	Parking, Wharf (Repealed by 56371, 56381)
52991	Repeals line 3, page 1151, line 31, page 1156, § 850.030, 1960 Code (Repealer)
52992	Amends § 888.030, 1960 Code, parking, Fourth Street (Not codified)
52993	Amends § 887.040, 1960 Code, parking, Fourth Street (Not codified)

52994	Traffic-control signals, Fourteenth Street and Pine Street (Not codified)
52995	Parking, Pine Street (Not codified)
52996	Amends § 4, adds §§ 4-A and 4-B, Ord. 51983, parking (Not codified)
52997	Repeals line 43, page 1077, line 1, page 1078, line 31, page 1079, line 4, page 1091, lines 25 and 34, page 1107, line 10, page 1108, lines 38, 41 and 42, page 1113, § 850.020, 1960 Code (Repealer)
52998	Repeals line 16, page 1114, line 30, page 1116, line 22, page 1131, line 2, page 1133, line 2, page 1134, line 30, page 1139, lines 31, 36, 37, 38, page 1142, § 850.020, 1960 Code (Repealer)
52999	Prohibits commercial vehicles, Mimika Ave. (Not codified)
53000	Amends district map 1960, changes zoning to "J" industrial district (Special)
53001	Vacates Idaho Ave. and Primm Street (Special)
53002	Directs filing application for grant for community renewal program (Special)
53003	Vacates part Market Street, dedicated areas block 1714 (Special)
53004	Authorizes contracts for rehabilitation of sidewalks on Fifteenth Street (Special)
53005	Vacates alleys (Special)
53006	Amends district map 1960, changes zoning to "J" industrial district (Special)
53007	Amends district map 1960, changes zoning to "G" commercial district (Special)
53008	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
53009	Playground stop, Euclid Ave. and Ashland Ave., York Court (Not codified)
53010	Stop intersection, Palm Street and Geraldine Ave. (Not codified)
53011	Stop intersection, Lexington Ave. and Taylor Ave. (Not codified)
53012	Parking, Lexington Ave. (Not codified)
53013	Stop intersection, Sacramento Ave. and Marcus Ave. (Not codified)
53014	Repeals Ord. 52678 (Repealer)
53015	Repeals line 5, page 1156, § 850.030, 1960 Code (Repealer)
53016	Prohibits commercial vehicles, Maffitt Ave. (Not codified)
53017	Designates Labadie Ave. one-way street (Not codified)
53018	Prohibits commercial vehicles, Maffitt Ave. (Not codified)
53019	Stop intersection, Cote Brilliante Ave. and Arlington Ave. (Not codified)
53020	Amends § 888.030, 1960 Code, parking, Natural Bridge Ave. (Not codified)
53021	Prohibits commercial vehicles, Terry Ave. (Not codified)
53022	Prohibits commercial vehicles, Farlin Ave. (Not codified)
53023	Parking, Maury Ave. (Not codified)
53024	Parking, Maury Ave. (Not codified)
53025	Amends § 887.040, 1960 Code, parking, Morgan Ford Road (Not codified)
53026	Parking, Chippewa Street (Not codified)
53027	Amends § 888.040, 1960 Code, parking, McDonald Ave. (Not codified)
53028	Stop intersection, Bell Ave. and Spring Ave. (Not codified)
53029	Repeals line 15, page 1162, line 41, page 1165, § 850.040, 1960 Code (Repealer)
53030	Church stop, St. Alphonsus Street and Finney Ave. (Not codified)
53031	Stop intersection, Finney Ave. and Spring Ave. (Not codified)
53032	Traffic-control signals, Cook Ave. and Grand Boulevard (Not codified)
53033	Traffic-control signals, Fourteenth Street and Pine Street (Not codified)
53034	Repeals line 22, page 1281, § 888.040, 1960 Code (Repealer)
53035	Repeals line 9, page 1282, § 888.040, 1960 Code (Repealer)

53036 Repeals lines 7 and 8, page 1269, § 888.030, 1960 Code (Repealer)

53037 Amends § 887.040, 1960 Code, parking, Broadway (Not codified)

53038 School stop, Hornsby Ave. and Church Road (Not codified)

53039 Amends § 832.040, 1960 Code, speed limit, Jefferson Boulevard (Repealed by 57831)

53040 Parking, Seventeenth Street (Not codified)

53041 Amends § 888.020, 1960 Code, parking, Seventeenth Street (Not codified)

53042 Repeals line 14, page 1222, § 887.010, 1960 Code (Repealer)

53043 Amends § 839.080(1) and (4), 1960 Code, traffic signals (Repealed by 57831)

53044 Amend § 887.030, 1960 Code, parking, St. Charles Street (Not codified)

53045 Traffic-control signals, Clark Ave. and Eighteenth Street (Not codified)

53046 Amends § 887.010, 1960 Code, parking, Eighteenth Street (Not codified)

53047 Parking, St. Charles Street (Not codified)

53048 Repeals lines 14 and 8, page 1137, § 850.020, 1960 Code (Repealer)

53049 Parking, Poplar Street (Repealed by 57618)

53050 Parking, Eighth Street (Repealed by 57618)

53051 Amends § 2(13), Ord. 51983, parking, Eighth Street (Not codified)

53052 Amends § 3(16), Ord. 51983, parking, Eighth Street (Not codified)

53053 Parking, Seventeenth Street (Not codified)

53054 Repeals line 36, page 1088, § 850.020, 1960 Code (Repealer)

53055 Traffic-control signals, Page Boulevard and Spring Ave. (Not codified)

53056 Parking, Washington Ave. (Not codified)

53057 Stop intersection, Newcomb Place and Marcus Ave. (Not codified)

53058 Parking, Broadway (Not codified)

53059 Authorizes lease of Snodgras Laboratory to Washington University (Special)

53060 Parking, repeals Ord. 51983 (Repealed by 53863)

53061 Parking, California Ave. (Not codified)

53062 Parking, California Ave. (Not codified)

53063 Stop intersection, Lawrence Ave. and McRee Ave. (Repealed by 53771)

53064 Stop intersection, Lawrence Ave. and Blaine Ave. (Not codified)

53065 Parking, Lafayette Ave. (Not codified)

53066 Parking, Longfellow Boulevard (Not codified)

53067 Parking, Thirty-ninth Street (Not codified)

53068 Parking, Grand Boulevard (Not codified)

53069 Stop intersection, Virginia Ave. and Hickory Street (Not codified)

53070 Amends § 224.110, 1960 Code, peddlers in parks (Repealed by 64569)

53071 Amends district map 1960, changes zoning to "F" local business district (Special)

53072 Parking, Eleventh Street (Not codified)

53073 Parking, Eighth Street (Not codified)

53074 Parking, Eighth Street (Not codified)

53075 Repeals line 23, page 1094, line 23, page 1131, § 850.020, 1960 Code (Repealer)

53076 Amends § 888.030, 1960 Code, parking, Twenty-second Street (Not codified)

53077 Repeals line 16, page 1273, § 888.030, 1960 Code (Repealer)

53078 Stop intersection, Twentieth Street and Cole Street (Not codified)

53079 Repeals lines 15 and 16, page 1228, § 887.030, 1960 Code (Repealer)

53080 Stop intersection, Biddle Street and Eleventh Street (Not codified)

53081 Repeals lines 39 and 41, page 1132, line 13, page 1136, § 850.020, 1960 Code (Repealer)

53082 Amends § 887.010, 1960 Code, parking, Biddle Street (Not codified)

53083 Repeals lines 17, 22, 24, page 1103, § 850.020, 1960 Code (Repealer)

53084 Repeals lines 23, 25, 32, page 1074, line 21, page 1076, lines 11, 14, 15, 43, page 1078, § 850.020, 1960 Code (Repealer)

53085 Parking, Biddle Street (Not codified)

53086 Repeals line 20, page 1147, line 4, page 1149, § 850.030, 1960 Code (Repealer)

53087 Parking, Carr Street (Not codified)

53088 Repeals line 2, page 1241, § 887.040, 1960 Code (Repealer)

53089 Repeals line 8, page 1242, § 887.040, 1960 Code (Repealer)

53090 Repeals line 7, page 1156, § 850.030, 1960 Code (Repealer)

53091 Parking, Cass Ave. (Not codified)

53092 Parking, Cass Ave. (Not codified)

53093 Repeals line 44, page 1088, line 28, page 1092, line 4, page 11 17, lines 24 and 26, page 1131, line 33, page 1137, line 6, page 1140, § 850.020, 1960 Code (Repealer)

53094 Amends § 887.030, 1960 Code, parking, Carr Street (Not codified)

53095 Amends § 887.040, 1960 Code, parking, Twentieth Street (Repealed by 54556)

53096 Repeals line 17, page 1272, § 888.030, 1960 Code (Repealer)

53097 Amends § 887.030, 1960 Code, parking, Sixth Street (Not codified)

53098 Parking, Seventh Street (Not codified)

53099 Repeals line 29, page 1163, line 9, page 1166, § 850.040, 1960 Code (Repealer)

53100 Repeals lines 32 and 33, page 1151, § 850.030, 1960 Code (Repealer)

53101 Repeals line 27, page 1162, line 34, page 1164, § 850.040, 1960 Code (Repealer)

53102 Stop intersection, Carr Street and Eighteenth Street (Not codified)

53103 Repeals line 5, page 1082, § 850.020, 1960 Code (Repealer)

53104 Parking, Broadway (Not codified)

53105 Repeals line 4, page 1229, § 887.0309 1960 Code (Repealer)

53106 Parking, Seventh Street (Not codified)

53107 Repeals line 26, page 1131, § 850.020, 1960 Code (Repealer)

53108 Repeals line 16, page 1136, § 850.020, 1960 Code, stop intersection, Tenth Street and O'Fallon Street (Repealer)

53109 Playground stop, Twentieth Street and O'Fallon Street (Not codified)

53110 Parking, Tenth Street (Not codified)

53111 Parking, Sixth Street (Not codified)

53112 Repeals line 21, page 1251G, line 1, page 1251H, § 887.040, 1960 Code (Repealer)

53113 Amends § 851.010, 1960 Code, designates Carr Street one-way street (Not codified)

53114 Parking, First Street (Not codified)

53115 Parking, Fifteenth Street (Not codified)

53116 Parking, Eighth Street (Not codified)

53117 Stop intersection, O'Fallon Street and Eleventh Street, repeals line 11, page 1151, line 19, page 1156, § 850.030, 1960 Code, school stop (Not codified)

53118 Repeals line 37, page 1171, § 851.010, 1960 Code (Repealer)

53119 Parking, East Fourteenth Street (Not codified)

53120 Parking, Eleventh Street (Not codified)

53121 Parking, Third Street (Not codified)

53122 Repeals lines 15 and 16, page 1276, § 888.030, 1960 Code (Repealer)

53123 Parking, Broadway (Not codified)

53124 Parking, Eleventh Street (Not codified)

53125 Amends § 887.010, 1960 Code, parking, Cass Ave. (Not codified)

53126 Parking, Howard Street (Not codified)

53127 Parking, Carr Street (Not codified)

53128 Repeals line 32, page 1215, § 887.010, 1960 Code (Repealer)

53129 Parking, Hadley Street (Not codified)

53130 Parking, Howard Street (Not codified)

53131 Parking, O'Fallon Street (Not codified)

53132 Parking, Mullanphy Street (Not codified)

53133 Repeals line 29, page 1209, § 887.010, 1960 Code (Repealer)

53134 Parking, Ninth Street (Not codified)

53135 Stop intersections (Not codified)

53136 Repeals line 5, page 1162, § 850.040, 1960 Code (Repealer)

53137 Repeals line 28, page 1161, § 850.040, 1960 Code (Repealer)

53138 Repeals line 8, page 1242, § 887.040, 1960 Code (Repealer)

53139 Parking, East Fourteenth Street (Not codified)

53140 Amends § 888.030, 1960 Code, parking, Nineteenth Street (Not codified)

53141 Parking, Ashley Street (Not codified)

53142 Parking, First Street (Not codified)

53143 Repeals line 16, page 1234, § 887.030, 1960 Code (Repealer)

53144 Parking, Seventeenth Street (Not codified)

53145 Repeals line 23, page 1259, § 888.030, 1960 Code (Repealer)

53146 Amends § 882.020, 1960 Code, sale of unredeemed cars (Repealed by 56910)

53147 Repeals line 19, page 1261, § 888.030, 1960 Code (Repealer)

53148 Amends § 888.030, 1960 Code, parking, Twenty-second Street (Not codified)

53149 Playground stop, Fifteenth Street and Carr Street (Not codified)

53150 Parking, Tenth Street (Not codified)

53151 Parking, Tenth Street (Not codified)

53152 Parking, Tenth Street (Not codified)

53153 Parking, Ninth Street (Not codified)

53154 Parking, Tenth Street (Not codified)

53155 Speed limit, Fourteenth Street, repeals line 9, page 1054b, § 832.050, 1960 Code (Repealed by 57831)

53156 Repeals Ord. 51462 (Repealer)

53157 Amends § 887.030, 1960 Code, parking, Hadley Street (Not codified)

53158 Parking, Twenty-first Street (Not codified)

53159 Amends § 887.030, 1960 Code, parking, Tenth Street (Not codified)

53160 Repeals line 16, page 1240, § 887.030, 1960 Code (Repealer)

53161 Parking, Seventh Street (Not codified)

53162 Parking, Seventh Street (Not codified)

53163 Parking, Sixth Street (Not codified)

53164 Parking, Sixth Street (Not codified)

53165 Parking, Sixth Street (Not codified)

53166 Repeals line 9, page 1241, § 887.030, 1960 Code (Repealer)

53167 Repeals line 7, page 1274, § 888.030, 1960 Code (Repealer)

53168 Repeals line 37, page 1069, § 850.020, 1960 Code (Repealer)

53169 Repeals line 9, page 1163, § 850.040, 1960 Code (Repealer)

53170 Stop intersections (Not codified)

53171 School stop, Cote Brilliante Ave. and Semple Ave. (Not codified)

53172 Parking, Wells Ave. (Not codified)

53173 Parking, Clara Ave. (Not codified)

53174 Parking, Seventh Street (Not codified)

53175 Parking, Cole Street (Not codified)

53176 Amends § 888.030, 1960 Code, parking, Carr Street (Not codified)

53177 Amends § 851.010, 1960 Code, Cole Street one-way street (Not codified)

53178 Repeals Ord. 48014 (Repealer)

53179 Vacates alley (Special)

53180 Left turn from Union Boulevard to Cabanne Ave. (Repealed by 54590)

53181 Amends § 53.010, 1960 Code, recorder of deeds employee appointment and salaries (Ch. 4.34)

53182 Vacates various streets and alleys (Special)

53183 Appropriation for police department (Special)

53184 Repeals line 16, page 1279, § 888.040, 1960 Code (Repealer)

53185 Parking, Michigan Ave. (Not codified)

53186 Parking, Spring Ave. (Not codified)

53187 Parking, Hickory Street (Not codified)

53188 Parking, Newstead Ave. (Not codified)

53189 Amends § 887.020, 1960 Code, fire lane, Park Ave. (Not codified)

53190 Amends § 887.040, 1960 Code, parking, Chouteau Ave. (Repealed by 54864)

53191 Parking, Nebraska Ave. (Not codified)

53192 Stop intersection, Nineteenth Street and Angelrodt Street, Destrehan Street and Mallinckrodt Street (Not codified)

53193 Parking, Phillips Place (Not codified)

53194 Stop intersection, Pennsylvania Ave. and Osage Street (Not codified)

53195 Stop intersection, Iowa Ave. and Potomac Street (Not codified)

53196 Stop intersection, Iowa Ave. and Winnebago Street (Not codified)

53197 Stop intersection, Keokuk Street and Arkansas Ave. (Not codified)

53198 Parking, California Ave. (Not codified)

53199 Stop intersection, Potomac Street and Texas Ave. (Not codified)

53200 Stop intersection, Ohio Ave. and Winnebago Street (Not codified)

53201 Traffic-control signals, Belt Ave. and Delmar Boulevard (Not codified)

53202 Designates Varrelman Ave. one-way street (Not codified)

53203 Parking, Gravois Ave. (Not codified)

53204 Designates Dewey Ave. one-way street (Not codified)

53205 Stop intersection, Alfred Ave. and Wallace Ave. (Not codified)

53206 Parking, McCullagh Place (Not codified)

53207 Parking, Grand Boulevard (Not codified)

53208 Parking, Bircher Boulevard (Not codified).

53209 Designates Dressell Ave. one-way street (Not codified)

53210 Repeals line 8, page 1106, line 7, page 1124, § 850.020, 1960 Code (Repealer)

53211 Parking, Goodfellow Boulevard (Not codified)

53212 Stop intersection, Goodfellow Boulevard and Etzel Ave. and Plymouth Ave. (Not codified)

53213 Prohibits commercial vehicles, Kennerly Ave. (Not codified)

53214 Stop intersection, Cote Brilliante Ave. and Burd Ave. (Not codified)

53215 Parking, Fyler Ave. (Not codified)

53216 Amends § 888.020, 1960 Code, parking, Hampton Ave. (Not codified)

53217 Parking, Watson Road (Not codified)

53218 School stop, Nottingham Ave. and Murdock Ave. (Not codified)

53219 Parking, Fyler Ave. (Not codified)

53220 Amends § 888.030, 1960 Code, parking, Lindell Boulevard (Not codified)

53221 Amends § 851.010, 1960 Code, designates North Court one-way street (Not codified)

53222 Parking, Maryland Ave. (Repealed by 56065)

53223 Parking, Potomac Street (Repealed by 54601)

53224 Authorizes contract with U. S. Post Office for land lease at Lambert-St. Louis Municipal Airport (Special)

53225 Amends § 291.050, 1960 Code, defined unimproved public wharf (21.08.060)

53226 Vacates Lesperance Street (Special)

53227 Vacate Wisconsin Street, authorizes dedication of land (Special)

53228 Authorizes contracts for remodeling fire station No. 42 (Special)

53229 Authorizes contracts for rehabilitation area (Special)

53230 Authorizes dedication of part Thatcher Ave. (Special)

53231 Appropriation for acquisition of park (Special)

53232 Authorizes contracts for tree work (Special)

53233 Appropriation for current expenses (Special)

53234	Parking, Loughborough Ave. (Not codified)
53235	Amends § 887.040, 1960 Code, parking, Kingshighway Boulevard (Not codified)
53236	Parking, Boyle Ave. (Not codified)
53237	Parking, Tower Grove Ave. (Not codified)
53238	Parking, Market Street (Not codified)
53239	Parking, Clayton Ave. (Not codified)
53240	Parking, Taylor Ave. (Not codified)
53241	Repeals line 15, page 1259, § 888.030, 1960 Code (Repealer)
53242	Stop intersection, Clara Ave. and Etzel Ave. (Not codified)
53243	Amends § 888.040, 1960 Code, parking, Hodiamont Ave. (Not codified)
53244	Parking, Easton Ave. (Not codified)
53245	Parking, Pendleton Ave. (Not codified)
53246	Amends § 888.030, 1960 Code, parking, Olive Street (Not codified)
53247	Amends § 887.040, 1960 Code, parking, Forest Park Ave. (Repealed by 54872)
53248	Parking, Forest Park Ave. (Not codified)
53249	Repeals line 8, page 1204, § 886.010, 1960 Code (Repealer)
53250	Parking, Spring Ave. (Not codified)
53251	Repeals line 22, page 1075, lines 33 and 34, page 1077, line 6, page 1081, lines 33 and 34, page 1093, line 17, page 1111, line 42, page 1124, § 850.020, 1960 Code (Repealer)
53252	Vacates streets and alleys in Kosciusko Project (Special)
53253	Authorizes contracts for installation of utilities in Jefferson Memorial Area (Special)
53254	Changes part of Greer Ave. to Norwood Drive North (Special)
53255	Changes part of Labadie Ave. to Norwood Drive South (Special)
53256	Parking, Forest Park Ave. (Not codified)
53257	Parking, West Papin Street (Not codified)
53258	Parking, Forest Park Boulevard (Not codified)
53259	Parking, Sarpy Ave. (Not codified)
53260	Parking, Boyle Ave. (Not codified)
53261	Parking, Forest Park Boulevard (Not codified)
53262	Parking, Forest Park Boulevard (Not codified)
53263	Repeals Ord. 50912 (Repealer)
53264	Repeals line 32, page 1165, § 850.040, 1960 Code (Repealer)
53265	Parking, Kingshighway Boulevard (Not codified)
53266	Parking, Spring Ave. (Not codified)
53267	Parking, Westminster Place (Not codified)
53268	Repeals line 24, page 1274, § 888.030, 1960 Code (Repealer)
53269	Repeals line 23, page 1274, § 888.030, 1960 Code (Repealer)
53270	Parking, Sarah Ave. (Not codified)
53271	Parking, West Pine Boulevard (Not codified)
53272	Parking, Laclede Ave. (Not codified)
53273	Parking, Sarah Ave. (Not codified)
53274	Parking, Washington Ave. (Not codified)
53275	Repeals line 36, page 1156, § 850.030, 1960 Code (Repealer)
53276	Traffic-control signals, various intersections (Not codified)
53277	Parking, Newstead Ave. (Not codified)
53278	Repeals line 31, page 1217, § 887.010, 1960 Code (Repealer)
53279	Parking, Alabama Ave. (Not codified)
53280	School stop, Koeln Ave. and Vermont Ave. (Not codified)
53281	Parking, Morgan Ford Road (Not codified)
53282	Repeals line 7, page 1277, § 888.030, 1960 Code (Repealer)

53283 Parking, Carondelet Boulevard (Not codified)

53284 Parking, Carondelet Boulevard (Not codified)

53285 Parking, Carondelet Boulevard (Not codified)

53286 Various stop intersections (Not codified)

53287 Traffic-control signals, Alabama Ave., Germania Ave. and Marceau Street (Not codified)

53288 Stop intersection, Blow Street and January Ave. (Not codified)

53289 Stop intersection, Blow Street and Sharp Ave. (Not codified)

53290 Parking, Hampton Ave. (Not codified)

53291 Left turn from Morgan Ford Road to Poepping Street (Repealed by 57831)

53292 Designates Idaho Ave. one-way street (Not codified)

53293 Designates Bonita Ave. one-way street (Not codified)

53294 Parking, Cleveland Ave. (Not codified)

53295 Stop intersection, Wyoming Street and Bent Ave. (Not codified)

53296 Stop intersection, Botanical Ave. and Klemm Street (Not codified)

53297 Amends § 887.010, 1960 Code, parking, Vandeventer Ave. (Not codified)

53298 Parking, Thurman Ave. (Not codified)

53299 Repeals line 25, page 1157, § 850.030, 1960 Code (Repealer)

53300 Stop intersection, Gladys Ave. and Park Lane Ave. (Not codified)

53301 Stop intersection, Melrose Ave. and Park Lane Ave. (Not codified)

53302 Stop intersection, Harney Ave. and Geraldine Ave. (Not codified)

53303 Amends § 1, Ord. 51807, Garner Ave. one-way street (Not codified)

53304 Repeals lines 20 and 21, page 1235, § 887.030, 1960 Code (Repealer)

53305 Stop intersection, Aldine Ave. and Spring Ave. (Not codified)

53306 Stop codified)intersection, St. Louis Ave. and Whittier Street (Not codified)

53307 Repeals lines 14, 15, 16, 17, 18, 19, page 1251g, § 887.040, 1960 Code (Repealer)

53308 Stop intersection, Whittier Street and Labadie Ave. (Not codified)

53309 Prohibits commercial vehicles, Labadie Ave. (Not codified)

53310 Designates Leffingwell Ave. one-way street (Not codified)

53311 Stop intersection, North Market Street and Leffingwell Ave. (Not codified)

53312 Traffic-control signals, various intersections (Not codified)

53313 Fire lane, Angelrodt Street, repeals line 2, page 1252, § 888.010, 1960 Code (Not codified)

53314 Parking, Pattison Ave. (Not codified)

53315 Repeals line 2, page 1168, § 850.050, 1960 Code (Repealer)

53316 Yield right-of-way, Forest Ave. at Waideman Ave. (Repealed by 54512)

53317 Parking, Hereford Street (Not codified)

53318 Parking, McCausland Ave. (Not codified)

53319 Parking, Southwest Ave. (Not codified)

53320 Parking, Manchester Ave. (Not codified)

53321 Parking, Manchester Ave. (Not codified)

53322 Parking, Manchester Ave. (Not codified)

53323 Amends § 888.030, 1960 Code, parking, Daggett Ave. (Not codified)

53324 Parking, Hereford Street (Not codified)

53325 Amends § 887.010, 1960 Code, parking, Central Ave. (Not codified)

53326 Amends § 888.030, 1960 Code, parking, West Park Ave. (Not codified)

53327 Parking, Wilson Ave. (Not codified)

53328 Parking, West Park Ave. (Not codified)

53329 Parking, Manchester Ave. (Not codified)

53330 Designates Pearl Ave. one-way street (Not codified)

53331	Designates Pearl Ave. one-way street (Not codified)
53332	Parking, Sublette Ave. (Not codified)
53333	Parking, Sublette Ave. (Not codified)
53334	Parking, Leffingwell Ave. (Not codified)
53335	Stop intersection, Thomas Street and Webster Ave. (Not codified)
53336	Designates Leffingwell Ave. (Not codified)
53337	Repeals lines 28 and 35, page 1183, line 37, page 1186, line 40, page 1189, line 31, page 1190a, § 853.010, 1960 Code (Repealer)
53338	Amends § 1, Ord. 51491, parking, Washington Ave. (Not codified)
53339	Prohibits commercial vehicles, Enright Ave. (Not codified)
53340	Amends § 887.010, 1960 Code, parking, McCausland Ave. (Not codified)
53341	Repeals line 12, page 1147, line 4, page 1151, § 850.030, 1960 Code (Repealer)
53342	Designates Eighth Street one-way street (Not codified)
53343	School stop, Sarah Street and Maffitt Ave. (Not codified)
53344	Parking, Prairie Ave. (Not codified)
53345	Parking, Taylor Ave. (Not codified)
53346	Amends § 887.040, 1960 Code, parking, Newstead Ave. (Not codified)
53347	Repeals line 21, page 1155, § 850.030, 1960 Code (Repealer)
53348	Parking, Twenty-first Street (Not codified)
53349	Designates Michigan Ave. one-way street (Not codified)
53350	Traffic-control signals, Magnolia Ave. and Tower Grove Ave. (Not codified)
53351	Parking, Meramec Street, repeals line 16, page 1253, § 888.010, line 6, page 1257, § 888.020, line 11, page 1269, § 888.030, 1960 Code (Not codified)
53352	Repeals line 30, page 1163, § 850.040, 1960 Code (Repealer)
53353	Repeals line 35, page 1156, § 850.030, 1960 Code (Repealer)
53354	Amends § 888.010, 1960 Code, parking, Grand Boulevard (Not codified)
53355	Repeals line 14, page 1162, § 850.040, 1960 Code (Repealer)
53356	Repeals line 5, page 1160, § 850.040, 1960 Code (Repealer)
53357	Repeals line 11, page 1114, § 850.020, 1960 Code (Repealer)
53358	Fire lane, McCausland Ave. (Not codified)
53359	Prohibits commercial vehicles, Columbia Ave. (Not codified)
53360	Amends § 887.040, 1960 Code, parking, McCausland Ave. (Not codified)
53361	Stop intersection, Labadie Ave. and Warne Ave., line 14, page 1154, § 850.030, 1960 Code (Not codified)
53362	Parking, Obear Street (Not codified)
53363	Stop intersections, Clarence Ave. and Rosalie Ave., Warne Ave. and Carter Ave. (Not codified)
53364	Repeals line 14, page 1154, line 16, page 1157, line 37, page 1158, line 35, page 1159, line 15, page 1160, § 850.030, 1960 Code (Repealer)
53365	Repeals line 18, page 1261, § 888.030, 1960 Code (Repealer)
53366	Parking, Howard Street (Not codified)
53367	Amends § 888.030, 1960 Code, parking, Chenning Ave. (Not codified)
53368	Designates Bell Ave. one-way street (Not codified)
53369	Parking, North Market Street (Not codified)
53370	Amends § 888.030, 1960 Code, parking, Franklin Ave. (Not codified)
53371	Authorizes exchange of land (Special)
53372	Amends Ch. 54, 1960 Code, sheriff office employee salaries (Ch. 4.36)
53373	Coroner and morgue employee appointment and salaries (4.42.010)
53374	Amends § 49.020, 1960 Code, city treasurer employee appointment and salaries (4.26.020)

53375 Amends § 51.010, 1960 Code, parking meter division personnel compensation and duties (4.30.010)

53376 Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)

53377 Amends §§ 19 and 21, Ch. 2, 1948 Code, board of aldermen employee salaries, repeals Ords. 45486, 45559, 46336, 48611, 50052, 50574 and 52743 (3.06.240, 4.22.010)

53378 Parking, Broadway (Not codified)

53379 Construction of Primm Street (Special)

53380 Prohibits commercial vehicles, Kensington Ave. (Not codified)

53381 Parking, Union Boulevard (Not codified)

53382 Traffic-control signals, Easton Ave. and Euclid Ave. (Not codified)

53383 Traffic-control signals, Euclid Ave. and Page Ave. (Not codified)

53384 Church stop, Washington Boulevard and Ewing Ave. (Not codified)

53385 Stop intersection, Lucas Ave. and Leonard Ave. (Not codified)

53386 Traffic-control signals, Cook Ave. and Grand Boulevard (Not codified)

53387 Parking, North Market Street (Not codified)

53388 Repeals line 24, page 1264, § 888.030, 1960 Code (Repealer)

53389 Stop intersection, Mount Pleasant Street and Minnesota Ave. (Not codified)

53390 Parking, Marceau Street (Not codified)

53391 Amends § 832.060, 1960 Code, speed limit, Marceau Street (Repealed by 57831)

53392 Parking, Broadway (Not codified)

53393 Parking, Loughborough Ave. (Not codified)

53394 Stop intersection, January Ave. and Robert Ave. (Not codified)

53395 Stop intersection, Delor Street and January Ave. (Not codified)

53396 Parking, Hampton Ave. (Not codified)

53397 Stop intersection, Cleveland Ave. and Klemm Street (Not codified)

53398 Repeals Ord. 52169 (Repealer)

53399 Amends § 3, Ord. 52198, parking, Flad Ave. (Not codified)

53400 Repeals line 19, page 1159, § 850-030, 1960 Code (Repealer)

53401 Stop intersection, Tenth Street and Cole Street (Not codified)

53402 Parking, Franklin Ave. (Not codified)

53403 Parking, Seventh Street (Repealed by 57831)

53404 Stop intersection, Carr Street and Tenth Street (Not codified)

53405 Amends § 887.040, 1960 Code, parking, Leffingwell Ave. (Repealed by 54322)

53406 Repeals line 12, page 1241, § 887.030, 1960 Code (Repealer)

53407 Parking, Eighth Street (Not codified)

53408 Parking, Pine Street (Not codified)

53409 Amends § 832.040, 1960 Code, speed limit, Goodfellow Boulevard (Repealed by 57831)

53410 Amends § 832.050, 1960 Code, speed limits, Hampton Ave. and Goodfellow Boulevard (Repealed by 57831)

53411 Stop intersection, Taylor Ave. and Finney Ave. (Not codified)

53412 Repeals lines 1 and 2, page 1251f, § 887.040, 1960 Code (Repealer)

53413 Parking, Barton Street and Broadway (Not codified)

53414 Parking, Shenandoah Ave. (Not codified)

53415 School stop, Eleventh Street and Madison Ave. (Not codified)

53416 Stop intersections, Benton Ave. and Jefferson Ave., North Market Street and Thirteenth Street (Not codified)

53417 Parking, Leffingwell Ave. (Not codified)

53418 Stop intersection, Nineteenth Street and North Market Street (Not codified)

53419	Stop intersection, Vista Ave. and Theresa Ave. (Not codified)
53420	Right turn from Chouteau Ave. to Central Industrial Drive (Repealed by 57831)
53421	Repeals line 16, page 1166, § 850.050, 1960 Code (Repealer)
53422	Parking, Delmar Boulevard (Not codified)
53423	Parking, Delmar Boulevard (Not codified)
53424	Repeals line 3, page 1266, § 888.030, 1960 Code (Repealer)
53425	Parking, East Gate Ave. (Not codified)
53426	Repeals line 21, page 1152, § 850.030, 1960 Code (Repealer)
53427	Repeals line 6, page 1232, § 887.030, 1960 Code (Repealer)
53428	Amends § 887.010, 1960 Code, parking, Ninth Street (Not codified)
53429	Parking, Eleventh Street (Not codified)
53430	Repeals line 2, page 1255, § 888.020, 1960 Code (Repealer)
53431	Stop intersection, Bancroft Ave. and McCausland Ave. (Not codified)
53432	Parking, Emilie Street (Not codified)
53433	Parking, Watson Road (Not codified)
53434	Amends § 888.030, 1960 Code, parking, Sulphur Ave. (Not codified)
53435	Traffic-control signals, Newstead and St. Louis Ave. (Not codified)
53436	Vacates Valentine Street, part Spruce Street, alley, block 188 (Special)
53437	Authorizes lease agreement with U. S. Government for land at Lambert-St. Louis Municipal Airport (Special)
53438	Vacates alleys (Special)
53439	Vacates alley (Special)
53440	Vacates alley (Special)
53441	Vacates alley (Special)
53442	Vacates part St. George Street (Special)
53443	Vacates part St. George Street, alley, block 760 (Special)
53444	Vacates alley (Special)
53445	Amend district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
53446	Amends district map 1960, changes zoning to "A" single-family dwelling district (Special)
53447	Amends district map 1960, changes zoning to "F" local business district (Special)
53448	Amends district map 1960, changes zoning to "J" industrial district (Special)
53449	Authorizes lease with Trans World Airlines, Inc. for building at Lambert-St. Louis Municipal Airport (Special)
53450	Adds § 19, Ord. 52552, vehicle storage (Ch. 8.70)
53451	Sale of property (Special)
53452	Sale of property (Special)
53453	Vacates Merchant Street (Special)
53454	Accepts quit claim deed to property (Special)
53455	Vacate streets and alleys in Mill Creek Valley Project (Special)
53456	Amends § 2618.92, 1960 Code, enclosures (Repealed by 56797)
53457	Amends § 2606.32, 1960 Code, existing exitways (Repealed by 56797)
53458	Amends § 3207.4, 1960 Code, location of standpipes (Repealed by 56797)
53459	Amends §§ 3606.31 and 3606.41, 1960 Code, hoistway enclosures (Repealed by 56797)
53460	Amends §§ 2429.21, 2429.3, 1960 Code, inspections of structures on roof (Repealed by 56797)
53461	Repeals § 6(2), Ord. 52552, vehicle storage (Ch. 8.70)
53462	Amends Ord. 51640, establishes park and playground (Special)
53463	Vacates part alley (Special)
53464	Vacates Broadman Street (Special)
53465	Vacates part alley, block 5940 (Special)
53466	Vacates Milentz Ave. (Special)

53467 Amends §§ 754.010, 754.020 and 754.030, 1960 Code, sale of weapons to minors (15.134.010, 15.134.020, 15.134.030)

53468 Repeals line 3, page 1161, § 850.040, 1960 Code (Repealer)

53469 Parking, Sidney Street (Not codified)

53470 Stop intersection, Seventh Street and Utah Street (Repealed by 54344)

53471 Parking, Shenandoah Ave. (Not codified)

53472 Repeals line 34, page 1156, § 850.030, 1960 Code (Repealer)

53473 Parking, Fairview Ave. (Not codified)

53474 Parking, Arkansas Ave. (Not codified)

53475 Parking, Hereford Street (Repealed by 53656)

53476 Stop intersection, Arkansas Ave. and Juniata Street (Not codified)

53477 Amends § 888.030, 1960 Code, parking, Fyler Ave. (Not codified)

53478 Stop intersection, Tholozan Ave. and Hereford Street (Not codified)

53479 Parking, Meramec Street (Not codified)

53480 Parking, Spring Ave. (Not codified)

53481 Repeals line 12, page 1260, § 888.030, 1960 Code (Repealer)

53482 Designates Illinois Ave. one-way street (Not codified)

53483 Repeals line 33, page 1132, § 850.020, 1960 Code (Repealer)

53484 Designates Seventh Street one-way street (Not codified)

53485 Designates Withnell Ave. one-way street (Not codified)

53486 Parking, Seventh Street (Not codified)

53487 Parking, Arsenal Street (Not codified)

53488 Prohibits commercial vehicles, alleys, block 1514 (Repealed by 57831)

53489 Repeals lines 7 and 15, page 1070, lines 29 and 45, page 1075, line 1, page 1076, line 10, page 1084, line 36, page 1085, § 850.020, 1960 Code (Repealer)

53490 Fire lane, Blair Ave. (Not codified)

53491 Designates Carter Ave. one-way street (Not codified)

53492 Stop intersection, Bancroft Ave. and Childress Ave. (Not codified)

53493 Parking, Kingshighway Boulevard (Not codified)

53494 Stop intersection, Hancock Street and Ivanhoe Ave. (Not codified)

53495 Parking, Frisco Ave. (Not codified)

53496 Stop intersection, Shawmut Place and Minerva Ave. (Not codified)

53497 Stop intersection, Shenandoah Ave. and Thurman Ave. (Not codified)

53498 Stop intersection, Castleman Ave. and Lawrence Ave. (Not codified)

53499 Repeals line 3, page 1150, § 850.030, 1960 Code (Repealer)

53500 Amends § 1, Ord. 52000, prohibits commercial vehicles, Forest Park Parkway (Not codified)

53501 Designates Westminster Place one-way street (Not codified)

53502 Amends § 887.030, 1960 Code, parking, Kingshighway Boulevard (Not codified)

53503 Parking, Spring Ave. (Not codified)

53504 Repeals line 42, page 1074, § 850.020, 1960 Code (Repealer)

53505 School stop, Minerva Ave. and Semple Ave. (Not codified)

53506 School stop, Arlington Ave. and Minerva Ave. (Not codified)

53507 Parking, Union Boulevard (Not codified)

53508 Prohibits commercial vehicles, Semple Ave. (Not codified)

53509 Parking, Linton Street (Not codified)

53510 Stop intersection, Athlone Ave. and Rosalie Street (Not codified)

53511 Amends § 887.030, 1960 Code, parking, Thirteenth Street (Not codified)

53512 Amends § 887.050, 1960 Code, parking, Washington Boulevard (Not codified)

53513 Repeals line 4, page 1134, § 850.020, 1960 Code (Repealer)

53514 Amends § 887.040, 1960 Code, parking, Skinker Boulevard (Not codified)

53515 Parking, University Circle (Not codified)

53516 Repeals line 12, page 1259, § 888.030, 1960 Code (Repealer)

53517 Parking, Delmar Boulevard (Not codified)

53518 Prohibits commercial vehicles, Dewey Ave. (Repealed by 57831)

53519 Stop intersection, Cates Ave. and Claredon Ave., repeals line 4, page 1150, § 850.030, 1960 Code (Not codified)

53520 Amends § 887.040, 1960 Code, parking, Page Boulevard (Not codified)

53521 Parking, Page Boulevard (Not codified)

53522 Traffic-control signals, Broadway and Keokuk Street (Not codified)

53523 Parking, Jefferson Ave. (Not codified)

53524 Repeals line 11, page 1233, § 887.030, 1960 Code (Repealer)

53525 Amends § 887.050, 1960 Code, parking, Broadway (Not codified)

53526 Repeals line 12, page 1075, line 33, page 1105, § 850.020, 1960 Code (Repealer)

53527 Parking, Texas Ave. (Not codified)

53528 Parking, Broadway (Not codified)

53529 Parking, Broadway (Not codified)

53530 Parking, Broadway (Not codified)

53531 Repeals line 2, page 1204, line 2, page 1205, § 888.010, 1960 Code (Repealer)

53532 Parking, Broadway (Not codified)

53533 Parking, Broadway (Not codified)

53534 Parking, Chippewa Street (Not codified)

53535 Parking, Fourteenth Street (Not codified)

53536 Repeals line 44, page 1154, line 16, page 1156, § 850.030, 1960 Code (Repealer)

53537 Parking, Fourth Street (Not codified)

53538 Repeals line 6, page 1276, § 888.030, 1960 Code (Repealer)

53539 Repeals lines 17 and 18, page 1080, § 850.020, 1960 Code (Repealer)

53540 Stop intersection, Newstead Ave. and Finney Ave. (Not codified)

53541 Stop intersection, Cook Ave. and Spring Ave. (Not codified)

53542 Parking, Spring Ave. (Not codified)

53543 Repeals line 38, page 1159, § 850.030, 1960 Code (Repealer)

53544 Prohibits commercial vehicles, Newberry Terrace (Not codified)

53545 Parking, Magnolia Street (Not codified)

53546 Parking, Sulphur Ave. (Not codified)

53547 Designates Gilson Ave. one-way street (Not codified)

53548 Parking, Texas Ave. (Not codified)

53549 Stop intersection, Bradley Street and Ivanhoe Ave. (Not codified)

53550 School stop, Hamilton Ave. and Julian Ave. (Not codified)

53551 Appropriations for current expenses (Special)

53552 Amends Ch. 149, 1960 Code, tax levies (5.26.010—5.26.050)

53553 Defines blighted area (Special)

53554 Vacates alley (Special)

53555 Additional appropriation for wildfowl lakes (Special)

53556 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

53557 Littering (Repealed by 56726)

53558 Directs issuance of bonds (Special)

53559 Authorizes contract with St. Louis County (Special)

53560 Business licenses, repeals §§ 29-15, 29-35, 29-38, 29-45, 29-47, 29-80, 29-91, 29-93, 29-101, 29-102, 29-105, 29-106, 29-116, 29-121, 29-122, 29-138, 29-158, 29-159, 29-169, 29-171, 29-181, 29-190, 29-191, 29-192, 29-198, 29-199, 29-204, 29-210 and 29-217, Ord. 52030 Ch. 8.12)

53561 Employment of strike breakers (Ch. 15.56)

53562 Vacates alley (Special)

53563 Vacates part West Court (Special)

53564 Ward boundaries, repeals Ord. 42590 (Ch. 2.12)

53565 Ratifies grant agreement, contract No. FA-65-C-3141, project No. 9-23-034-C519 (Special)

53566 Amends § 151.020, 1960 Code, license collector employees appointment and salaries (8.10.020)

53567 Amends § 50.010, repeals § 50.020, 1960 Code, license collector employee salaries (Ch. 4.28)

53568 Authorizes lease with U. S. Government for land at Lambert-St. Louis Municipal Airport (Special)

53569 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

53570 Authorizes dedication of streets and alleys in Civic Center Redevelopment Area (Special)

53571 Authorizes lease agreement amendment with Young Aviation Corp. (Special)

53572 Directs German Evangelical St. Marcus Congregation to remove all bodies from Old St. Marcus Cemetery (Special) (Repealed by 56107)

53573 Vacates part alley (Special)

53574 Vacates alley (Special)

53575 Vacates LaSalle Street (Special)

53576 Vacates Pine Street and Market Street (Special)

53577 Changes Carroll Street to Carroll Mall (Special)

53578 Vacates part Broadway (Special)

53579 Changes Soulard Street to Soulard Mall (Special)

53580 Vacates part Merchant Street (Special)

53581 Vacates alley (Special)

53582 Vacates Chambers Street (Special)

53583 Amends Ch. 289, 1960 Code, abandoned automobiles (Repealed by 56910)

53584 Adds §§ 29-59(a), 29-59(b) and 29-59(c), Ord. 52030, repeals § 29-59, coin-operated machines (8.06.426, 8.06.428)

53585 Amends § 29-58, Ord. 52030, coin-operated amusement devices (8.06.424)

53586 Authorizes contracts for resurfacing various streets (Special)

53587 Authorizes quit claim deed to Union Electric Co. (Special)

53588 Construction of sidewalk on Iowa Street (Special)

53589 Amends § 263.090, 1960 Code, cross grade construction of sidewalks (20.26.090)

53590 Junk yards (Ch. 8.50)

53591 Authorizes contracts for reconstruction of medians and traffic channelization (Special)

53592 Adds §§ 264.120, 264.130, 264.140, 264.150, 264.160, 264.170 and 264.180, 1960 Code, obstruction and encroachment on sidewalks (Repealed by 66376)

53593 Vacates Wyoming Street, alley, block 1521 (Special)

53594 Adds § 832.085, 1960 Code, minimum speed for divided highway (Repealed by 57831)

53595 Designates official agency for development of business (3.48.220)

53596 Outdoor drive-in movies (Title 26)

53597 Changes Joseph Vigo Park to Louis G. (Midge) Berra Park (22.44.190)

53598 Authorizes contracts for installation of utilities in Jefferson Memorial Area (Special)

53599 Adds § 255.015, 1960 Code, establishes street inspection and harbor and wharf sections (3.32.020)

53600 Amends § 255.030, 1960 Code, street maintenance, bridge maintenance, and street cleaning sections (3.32.040)

53601 Parking, parks and playgrounds (Repealed by 58262)

53602 Adds §§ 27.011, 27.021 and 27.022, 1960 Code, establishes archival library (3.50.030-3.50.050)

53603 Amends § 335.335, 1960 Code, widow and children benefits under firemen's retirement system (Repealed by 58242)

53604 Amends § 335.350, 1960 Code, widow benefits under firemen's retirement system (4.18.200)

53605 Amends § 335.310, 1960 Code, disability benefits under firemen's retirement system (4.18.175)

53606 Amends § 851.010, 1960 Code, designates Oakview Place one-way street (Not codified)

53607 Amends district map 1960, changes zoning to "F" local business district (Special)

53608 Vacates Adelia Ave. (Special)

53609 Creates St. Louis beautification commission (Repealed by 56708)

53610 Vacates part Van Buren Street (Special)

53611 Sale of property (Special)

53612 Amends district map 1960, changes zoning to "E" multiple-family dwelling district (Special)

53613 Sale of property (Special)

53614 Repeals line 20, page 1077, § 850.020, 1960 Code (Repealer)

53615 Parking, Loughborough Ave. (Not codified)

53616 Stop intersection, Ivory Street and Steins Street (Not codified)

53617 Parking, Eichelberger Street (Not codified)

53618 Stop intersection, Holly Hills Ave. and Michigan Ave. (Not codified)

53619 Stop intersection, Loughborough Ave. and Michigan Ave. (Not codified)

53620 Parking, Broadway (Not codified)

53621 Designates Bellerive Boulevard one-way street (Not codified)

53622 Traffic-control signals, Broadway and Marceau Street (Not codified)

53623 Parking, Eiler Street (Not codified)

53624 Parking, Maeder Street (Not codified)

53625 Stop intersection, Minnesota Ave. and Dover Street (Not codified)

53626 School stop, Compton Ave. and Chariton Ave. (Not codified)

53627 Parking, Mount Pleasant Street (Not codified)

53628 Parking, Virginia Ave. (Not codified)

53629 Parking, Nagel Ave. (Not codified)

53630 Parking, Michigan Ave. (Not codified)

53631 Designates Dover Street one-way street (Not codified)

53632 Designates Michigan Ave. one-way street (Not codified)

53633 Parking, Steins Street (Not codified)

53634 Parking, Iron Street (Not codified)

53635 Parking, Koeln Ave., repeals § 1, Ord. 49644 (Not codified)

53636 Stop intersection, Minnesota Ave. and Fillmore Street (Not codified)

53637 Parking, Bates Street (Not codified)

53638 Traffic-control signals, Broadway and Loughborough Ave. (Not codified)

53639 Stop intersection, Winnebago Street and Minnesota Ave. (Not codified)

53640 Playground stop, West Iowa Ave. and Gasconade Street (Not codified)

53641 Stop intersection, Winnebago Street and Texas Ave. (Not codified)

53642 Playground stop, East Iowa Ave. and Gasconade Street (Not codified)

53643 Stop intersection, Texas Ave. and Miami Street (Not codified)

53644 Stop intersection, Connecticut Street and Arkansas Ave. (Not codified)

53645 Parking, Virginia Ave. (Not codified)

53646 Amends § 888.010, 1960 Code, parking, Meramec Street (Not codified)

53647 Parking, Twentieth Street (Not codified)

53648 Repeals line 12, page 1143, § 850.020, 1960 Code (Repealer)

53649 Parking, Twentieth Street (Not codified)

53650	Parking, Idaho Ave. (Not codified)
53651	Repeals line 21, page 1236, § 887.030, 1960 Code (Repealer)
53652	Parking, Broadway (Not codified)
53653	Repeals Ord. 52569 (Repealer)
53654	Parking, Quincy Street (Not codified)
53655	Amends § 888.030, 1960 Code, parking, Steins Street (Not codified)
53656	Repeals Ord. 53475 (Repealer)
53657	Parking, Hereford Street (Not codified)
53658	Parking, Michigan Ave. (Not codified)
53659	Parking, Delor Street (Not codified)
53660	Stop intersection, Hereford Street and Oleatha Ave. (Not codified)
53661	Designates Fairview Ave. and Parker Ave. one-way street (Not codified)
53662	Traffic-control signals, Beck Ave., Meramec Street and Morgan Ford Road (Not codified)
53663	Parking, Fairview Ave. (Not codified)
53664	Stop intersection, Mardel Ave. and Brannon Ave. (Not codified)
53665	Parking, Grace Ave. (Not codified)
53666	Parking, Roger Place (Not codified)
53667	Parking, Holt Ave. (Not codified)
53668	Parking, Parker Ave. (Not codified)
53669	Parking, Spring Ave. (Not codified)
53670	Prohibits commercial vehicles, Beck Ave. (Repealed by 54510)
53671	Amends § 888.030, 1960 Code, parking, Fairview Ave. (Not codified)
53672	Amends § 888.040, 1960 Code, parking, Holt Ave. (Not codified)
53673	Designates Pennsylvania Ave. one-way street (Not codified)
53674	Parking, Pennsylvania Ave. (Not codified)
53675	Parking, Itaska Street (Not codified)
53676	Repeals line 2, page 1252, § 888.010, 1960 Code (Repealer)
53677	Parking, Virginia Ave. (Not codified)
53678	Parking, Virginia Ave. (Not codified)
53679	Stop intersection, Minnesota Ave. and Delor Street (Not codified)
53680	Repeals line 26, page 1159, § 850.030, 1960 Code (Repealer)
53681	Repeals line 18, page 1077, § 850.020, 1960 Code (Repealer)
53682	Various stop intersections (Not codified)
53683	Repeals line 16, page 1146, § 850.020, 1960 Code (Repealer)
53684	Amends § 850.020, 1960 Code, stop intersections (Not codified)
53685	Repeals line 22, page 1153, § 850.030, 1960 Code (Repealer)
53686	Repeals line 16, page 1164, § 850.040, 1960 Code (Repealer)
53687	Amends § 851.010, 1960 Code, Bowen Ave. one-way street (Not codified)
53688	Designates Whittier Street one-way street (Not codified)
53689	Additional appropriation for election board (Special)
53690	Amends § 1, Ord. 52525, establishes park and community center (Special)
53691	Vacates alley (Special)
53692	Amends § 1, Ord. 52881, establishes park (Special)
53693	Amends §§ 750.010, 750.020 and 750.030, 1960 Code, curfew (Ch. 15.110)
53694	Authorizes quit claim deed to Anheuser-Busch, Inc. (Special)
53695	Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)
53696	Stop intersection, Spring Ave. and Wyoming Street (Not codified)
53697	Amends district map 1960, changes zoning to "F" local business district (Special)
53698	Prohibits commercial vehicles, Penrose Street (Not codified)
53699	Repeals line 42, page 1157, § 850.030, 1960 Code (Repealer)
53700	Repeals line 22, page 1280, § 888.040, 1960 Code (Repealer)

53701 Prohibits commercial vehicles, Lotus Ave. (Not codified)

53702 Repeals Ord. 45586, parking, Union Boulevard (Repealer)

53703 Parking, Hereford Street (Not codified)

53704 Repeals lines 9 and 10, page 1282a, § 888.040, 1960 Code, parking (Repealer)

53705 Repeals lines 11 and 12, page 1279, § 888.040, 1960 Code, parking (Repealer)

53706 Parking, Easton Ave. (Not codified)

53707 Amends § 888.040, 1960 Code, parking, Semple Ave. (Not codified)

53708 Designates Cates Ave. one-way street (Not codified)

53709 Repeals line 24, page 1119, § 850.020, 1960 Code, stop intersection (Repealer)

53710 Repeals lines 9 and 10, page 1279, § 888.040, 1960 Code, parking (Repealer)

53711 Designates Ridge Ave. one-way street (Not codified)

53712 Stop intersection, Cote Brilliante Ave. and Semple Ave., repeals line 38, page 1154, § 850.030, 1960 Code (Not codified)

53713 Repeals line 20, page 1236, § 887.030, 1960 Code, parking (Repealer)

53714 Parking, Goodfellow Boulevard (Not codified)

53715 Designates Ella Ave. one-way street (Not codified)

53716 Amends § 888.040, 1960 Code, parking, Arlington Ave. (Not codified)

53717 Repeals line 1, page 1282, § 888.040, 1960 Code, parking (Repealer)

53718 Prohibits commercial vehicles, Shawmut Place (Not codified)

53719 Prohibits commercial vehicles, Canaan Ave. (Not codified)

53720 Amends district map 1960, changes zoning to "C" multiple-family dwelling district (Special)

53721 Amends Ords. 51034 and 52778, permits additional urban redevelopment corporations (Special)

53722 Amends district map 1960, changes zoning to "E" multiple-family dwelling district (Special)

53723 Vacates alley, block 3690 (Special)

53724 Vacates Reifly Ave. and Schirmer Street (Special)

53725 Vacates parts Water Street, Vulcan Street and Loughborough Ave. (Special)

53726 Stop intersection, Utah Street and Bent Ave., repeals line 3, page 1163, § 850.030, 1960 Code (Not codified)

53727 Stop intersection, Oak Hill Ave. and Utah Street (Not codified)

53728 Prohibits commercial vehicles, Tyrolean Ave. (Not codified)

53729 Stop intersection, Juniata Street and Arkansas Ave. (Not codified)

53730 Prohibits commercial vehicles, Cecil Place (Not codified)

53731 Appropriation for improving Primm Street (Special)

53732 Amends Ch. 54, 1960 Code, sheriff office employee salaries (Ch. 4.36)

53733 Establishes land as part of Mississippi River flood control protection project (Special)

53734 Establishes entrance to Wellston metered parking lot, appropriation for purchase of property (Special)

53735 Authorizes agreement with state highway commission for development of comprehensive land use and transportation planning program (Special)

53736 Improvement of Walton Place (Special)

53737 Amends § 29-84, Ord. 52030, loan business license (8.06.542)

53738 Amends §§ 59.020, 59.030, 59.040, 59.050, 59.060, 59.070, 59.080, 59.130 and 59.140, 1960 Code, retirement system (Repealed by 64833)

53739 Authorizes agreement with U. S. Government for study of community renewal program (Special)

53740 Vacates alley, block 3569 (Special)

53741 Vacates alley, block 4913 (Special)

53742 Vacates Argyle Ave. (Special)

53743 Amends district map 1960, changes zoning to "J" industrial district (Special)

53744 Approves revised downtown sports stadium project redevelopment plan (Special)

53745 Amends § 887.010, 1960 Code, parking, Twenty-first Street (Not codified)

53746 Amends § 20.130, 1960 Code, building permits for buildings not having access to street (Repealed by 56708)

53747 Establishes park, authorizes acquisition of land, block 549 (Special)

53748 Adds Ch. 24, 1960 Code, establishes landmarks and urban design commission (Repealed by 57986)

53749 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

53750 Vacates alley, block 4177 (Special)

53751 Amends § 662.010, 1960 Code, location of certain businesses (8.16.030, 8.16.040)

53752 Regulations for edible meat product processors (Repealed by 62570)

53753 Amends district map 1960, changes zoning to multiple-family dwelling district (Special)

53754 Appropriation for beautification commission (Special)

53755 Authorizes board of commissioners of Bryan Mullanphy Emigrant and Traveler's Relief Fund to sell land, repeals Ord. 44998 (Special)

53756 Vacates part alley, block 1563 (Special)

53757 Construction of sidewalk on Natural Bridge Ave. (Special)

53758 Authorizes contracts for improvement of Park Ave. (Special) (Repealed by 56573)

53759 Adds § 2751.0 and 2751.1, 1960 Code, construction over sanitary landfills (Repealed by 56797)

53760 Amends § 2929.3, repeals § 2856.0, 1960 Code, outside fire limits (Repealed by 56797)

53761 Authorizes agreement with U. S. Government for urban renewal (Special)

53762 Prohibits commercial vehicles, Tyrolean Ave. (Not codified)

53763 Parking, Gano Ave. (Not codified)

53764 Repeals lines 19 and 20, page 1161, lines 25, 26, 34, 35, 37, and 39, page 1162, line 31, page 1165, § 850.040, 1960 Code, playground stops (Repealer)

53765 Playground stop, Sixth Street and Biddle Street (Not codified)

53766 Repeals line 33, page 1161, § 850.040, 1960 Code, playground stop (Repealer)

53767 Repeals Ord. 52383, parking, Ann Ave. (Repealer)

53768 Repeals lines 5 and 6, page 1275, § 888.030, 1960 Code, parking (Repealer)

53769 Parking, Third Street (Not codified)

53770 Parking, Third Street (Not codified)

53771 Repeals Ord. 53063, stop intersection, Lawrence Ave. and McRee Ave. (Repealer)

53772 Fire lane, Seventh Street (Not codified).

53773 Parking, Delmar Boulevard (Not codified)

53774 Parking, East Fourteenth Street (Not codified)

53775 Parking, Ninth Street (Not codified)

53776 Amends § 887.010, 1960 Code, parking, Vandeventer Ave. (Not codified)

53777 Parking, Vandeventer Ave. (Not codified)

53778 Parking, Vandeventer Ave. (Not codified)

53779 Parking, River Des Peres Drive (Not codified)

53780 Designates Clayton Ave. one-way street (Not codified)

53781 Repeals line 22, page 1160, § 850.030, 1960 Code, school stop (Repealer)

53782	Repeals line 12, page 1168, § 850.060, 1960 Code, church stop (Repealer)
53783	Parking, Lindell Boulevard (Not codified)
53784	Traffic-control signals, Broadway, Chouteau Ave. and Fourth Street (Not codified)
53785	Parking, Second Street (Not codified)
53786	Parking, Fourteenth Street (Not codified)
53787	Designates Allen Market Lane one-way street (Not codified)
53788	Stop intersection, San Francisco Ave. and Turner Ave. (Not codified)
53789	Parking, Compton Ave. (Not codified)
53790	Parking, Arsenal Street (Not codified)
53791	Parking, Watson Road (Not codified)
53792	Parking, Frieda Ave. (Not codified)
53793	Prohibits commercial vehicles, Frieda Ave. (Not codified)
53794	Left turn from Hamilton Ave. to Westminster Place and alley (Not codified)
53795	Parking, Skinker Boulevard (Not codified)
53796	Parking, Broadway (Not codified)
53797	Parking, Park Ave. (Not codified)
53798	Parking, Delmar Boulevard (Not codified)
53799	Parking, Vandeventer Ave. (Not codified)
53800	Designates Forest Ave. one-way street (Not codified)
53801	Parking, Clayton Road (Not codified)
53802	Parking, Boyle Ave. (Not codified)
53803	Parking, Vera Ave. (Not codified)
53804	Parking, Twentieth Street (Not codified)
53805	Parking, O'Fallon Street (Not codified)
53806	Parking, Seventeenth Street (Not codified)
53807	Stop intersection, Eighth Street and Hickory Street (Not codified)
53808	Parking, Shenandoah Ave. (Not codified)
53809	Parking, alley (Not codified)
53810	Parking, Manchester Ave. (Not codified)
53811	Parking, Lindell Boulevard (Not codified)
53812	Parking, Forest Park Ave. (Not codified)
53813	Repeals line 1, page 1275, § 888.030, 1960 Code, parking (Repealer)
53814	Parking, River Des Peres Drive (Not codified)
53815	Amends § 887.010, 1960 Code, parking, Delmar Boulevard (Not codified)
53816	Repeals line 31, page 1087, § 850.020, 1960 Code, stop intersection (Repealer)
53817	Parking, Forest Ave (Not codified)
53818	Prohibits commercial vehicles, Lilian Ave. (Not codified)
53819	Amends § 887.040, 1960 Code, parking, Broadway (Not codified)
53820	Parking, Franklin Ave. (Not codified)
53821	Parking, Davison Ave. (Not codified)
53822	Parking, Goodfellow Boulevard, repeals Ord. 52730 (Not codified)
53823	Repeals line 10, page 1085, § 850.020, 1960 Code, stop intersection (Repealer)
53824	Prohibits commercial vehicles, Bamberger Ave. (Not codified)
53825	Prohibits commercial vehicles, Hydraulic Ave. (Not codified)
53826	Parking, Ninth Street (Not codified)
53827	Parking, Sidney Street (Not codified)
53828	Parking, Arsenal Street (Not codified)
53829	Amends § 1, Ord. 52837, parking, Oregon Ave. (Repealed by 56290)
53830	Parking, Lynch Street (Not codified)
53831	Parking, Sidney Street (Not codified)
53832	Parking, Taylor Ave. (Not codified)
53833	Parking, Belt Ave. (Not codified)
53834	Parking, Delmar Boulevard (Not codified)

53835	Parking, Delmar Boulevard (Not codified)
53836	Parking, Belt Ave. (Not codified)
53837	Yield right-of-way, right turn bays of Wells Drive and Hampton Ave. (Not codified)
53838	Parking, Waterman Boulevard (Not codified)
53839	Parking, Maryland Ave. (Not codified)
53840	Parking, Kingshighway Boulevard (Not codified)
53841	Amends § 887.040, 1960 Code, parking, Union Boulevard (Not codified)
53842	Repeals lines 23 and 35, page 1163, § 850.030, 1960 Code, school stops (Repealer)
53843	Repeals line 20, page 1258, § 888.020, 1960 Code, parking (Repealer)
53844	Parking, Delmar Boulevard (Not codified)
53845	Prohibits commercial vehicles, Raymond Ave. (Not codified)
53846	Prohibits commercial vehicles, Cabanne Ave. (Not codified)
53847	Prohibits commercial vehicles, Knox Court (Not codified)
53848	Prohibits commercial vehicles, Hoffman Ave. (Not codified)
53849	Prohibits commercial vehicles, Odell Street (Not codified)
53850	Prohibits commercial vehicles, Sulphur Ave. (Not codified)
53851	Parking, various streets, repeals Ord. 51942 (Not codified)
53852	Prohibits commercial vehicles, Clifton Ave. (Not codified)
53853	Parking, Cass Ave. (Not codified)
53854	Parking, Tenth Street (Not codified)
53855	Designates Third Street one-way street (Not codified)
53856	Parking, Third Street (Not codified)
53857	Parking, Gustine Ave. (Not codified)
53858	Parking, Spring Ave. (Not codified)
53859	Stop intersection, Hornsby Ave. and Church Road (Not codified)
53860	Prohibits commercial vehicles, alley, block 4294 (Repealed by 57831)
53861	Repeals line 16, page 1214, § 887.010, 1960 Code, parking (Repealer)
53862	Parking, Twenty-second Street (Not codified)
53863	Parking, various streets, repeals Ord. 53060 (Repealed by 57831)
53864	Parking, Sidney Street (Not codified)
53865	Parking, Aldine Ave. (Not codified)
53866	Parking, Hampton Ave. (Not codified)
53867	Fire lane, Mullanphy Street (Not codified)
53868	Parking, Chambers Street (Not codified)
53869	Speed limit, north outer roadway of Mark Twain Expressway, repeals line 8, page 1054d, § 832.050, 1960 Code (Repealed by 57831)
53870	Parking, Third Street (Not codified)
53871	Fire lane, DeSoto Ave. (Not codified)
53872	Prohibits commercial vehicles, Enright Ave. (Not codified)
53873	Designates Seventh Street one-way street (Not codified)
53874	Parking, California Ave. (Not codified)
53875	Repeals line 24, page 1075, § 850.020, 1960 Code, stop intersection (Repealer)
53876	Repeals line 7, page 1259, § 888.030, 1960 Code, parking (Repealer)
53877	Parking, Eighteenth Street (Not codified)
53878	Repeals line 23, page 1168, § 850.040, 1960 Code, playground stop (Repealer)
53879	Repeals line 22, page 1162, line 7, page 1164, § 850.030, 1960 Code, school stops (Repealer)
53880	Repeals lines 12 an 32, page 1168, § 850.040, 1960 Code, playground stop (Repealer)
53881	Repeals line 42, page 1080, § 850.020, 1960 Code, stop intersection (Repealer)
53882	Repeals line 9, page 1142, § 850.020, 1960 Code, stop intersection (Repealer)
53883	Parking, Indiana Ave. (Not codified)

53884	Parking, Eleventh Street (Not codified)
53885	Parking, Commercial Strect (Not codified)
53886	Stop intersection, Thirteenth Street and Cole Street (Not codified)
53887	Parking, Eighth Street (Not codified)
53888	Amends § 1, Ord. 51000, Broadway one-way street (Not codified)
53889	Playground stop, Sixth Street and Biddle Street (Not codified)
53890	Parking, Third Street (Not codified)
53891	Parking, Seventh Street (Not codified)
53892	Parking, O'Fallon Street (Not codified)
53893	Parking, Carr Street (Not codified)
53894	Parking, Cass Ave. (Not codified)
53895	Parking, Hadley Street (Not codified)
53896	Repeals line 10, page 1167, line 9, page 1168, § 850.040, 1960 Code, playground stop (Repealer)
53897	Repeals lines 7 and 22, page 1169, § 850.050, 1960 Code, church stop (Repealer)
53898	Repeals line 36, page 1079, line 42, page 1122, § 850.020, 1960 Code, stop intersections (Repealer)
53899	Repeals line 20, page 1164, line 22, page 1167, line 19, page 1168, § 850.040, 1960 Code, playground stops (Repealer)
53900	Repeals line 3, page 1253, § 888.010, 1960 Code, parking (Repealer)
53901	Repeals line 14, page 1215, § 887.010, 1960 Code, parking (Repealer)
53902	Repeals line 23, page 1154, § 850.030, 1960 Code, school stop (Repealer)
53903	Repeals line 37, page 1135, § 850.020, 1960 Code, stop intersection (Repealer)
53904	Amends § 887.010, 1960 Code, parking, Third Street service ramp (Not codified)
53905	Amends § 887.010, 1960 Code, parking, Third Street (Not codified)
53906	Repeals line 23, page 1263, § 888.030, 1960 Code, parking, Clark Ave. (Repealer)
53907	Repeals line 1, page 1277, § 888.030, 1960 Code, parking, Sixth Street (Repealer)
53908	Repeals lines 19 and 20, page 1247, § 887.040, 1960 Code, parking (Repealer)
53909	Amends § 851.010, 1960 Code, Chestnut Street one-way street (Not codified)
53910	Repeals line 3, page 1264, § 888.030, 1960 Code, parking (Repealer)
53911	Parking, Sixteenth Street (Not codified)
53912	Parking, Fifteenth Street (Not codified)
53913	Parking, Pine Street (Not codified)
53914	Parking, Twenty-second Street (Not codified)
53915	Parking, Chestnut Street (Not codified)
53916	Amends § 887.040, 1960 Code, parking, Eighteenth Street (Not codified)
53917	Amends § 887.030, 1960 Code, parking, Eleventh Street (Not codified)
53918	Parking, Scott Ave. (Not codified)
53919	Parking, Sixteenth Street (Not codified)
53920	Parking, Pine Street (Not codified)
53921	Parking, Lucas Ave. (Not codified)
53922	Parking, East Grand Ave. (Not codified)
53923	Parking, Ninth Street (Not codified)
53924	Stop intersection, Nineteenth Street and Bissell Street (Not codified)
53925	Repeals line 38, page 1159, § 850.030, 1960 Code, stop intersection (Repealer)
53926	Repeals line 1, page 1165, fine 5, page 1166, § 850.040, 1960 Code, playground stop (Repealer)
53927	Stop intersection, Green Lea Place and Clay Ave. (Not codified)
53928	Repeals line 8, page 1281, § 888.030, 1960 Code, parking (Repealer)
53929	Parking, North Market Street (Not codified)
53930	Parking, Montgomery Street (Not codified)
53931	Amends § 887.010, 1960 Code, parking, Twenty-first Street (Not codified)

53932	Stop intersection, North Market Street and Fourteenth Street (Not codified)
53933	Amends § 888.030, 1960 Code, parking, Lismore Street (Not codified)
53934	Repeals line 24, page 1262, § 888.030, 1960 Code, parking (Repealer)
53935	Repeals line 14, page 1258, § 888.020, 1960 Code, parking (Repealer)
53936	Repeals line 23, page 1154, § 850.030, 1960 Code, school stop (Repealer)
53937	Amends § 887.040, 1960 Code, parking, Russell Boulevard (Not codified)
53938	Parking, Broadway (Not codified)
53939	Parking, Riverview Boulevard (Not codified)
53940	Repeals lines 1 and 2, page 1264, § 888.030, 1960 Code, parking (Repealer)
53941	Amends § 887.030, 1960 Code, parking, Twenty-first Street (Not codified)
53942	Amends § 888.030, 1960 Code, parking, Twenty-first Street (Not codified)
53943	Repeals line 3, page 1219, § 887.010, 1960 Code, parking (Repealer)
53944	Amends § 888.030, 1960 Code, parking, Twenty-second Street (Not codified)
53945	Parking, Locust Street (Not codified)
53946	Parking, Scott Ave. (Not codified)
53947	Parking, Washington Ave. (Not codified)
53948	Parking, Locust Street (Not codified)
53949	Parking, Twenty-first Street (Not codified)
53950	Parking, outer roadways of Third Street (Not codified)
53951	Parking, Twenty-second Street (Not codified)
53952	Parking, Clark Ave. (Not codified)
53953	Parking, Delmar Boulevard (Not codified)
53954	Parking, Eighteenth Street (Not codified)
53955	Parking, Thirteenth Street (Not codified)
53956	Parking, Pine Street (Not codified)
53957	Parking, Twentieth Street (Not codified)
53958	Parking, Market Street (Not codified)
53959	Yield right of way, Thirteenth Street at Pine Street (Not codified)
53960	Parking, Nineteenth Street (Not codified)
53961	Parking, Market Street (Not codified)
53962	Parking, Fifteenth Street (Not codified)
53963	Repeals line 8, page 1222, § 887.010, 1960 Code, parking (Repealer)
53964	Stop intersection, Geyer Ave. and Ohio Ave. (Not codified)
53965	Stop intersection, Accomac Street and Ohio Ave. (Not codified)
53966	Stop intersection, Arsenal Street and Missouri Ave. (Not codified)
53967	Stop intersection, Haven Street and Vermont Ave. (Not codified)
53968	Stop intersection, Itaska Street and Alexander Street (Not codified)
53969	Stop intersection, Shaw Boulevard and Lawrence Ave. (Not codified)
53970	Repeals line 4, page 1151, § 850.030, 1960 Code, school stop (Repealer)
53971	School stop, Kennerly Ave. and Cora Ave. (Not codified)
53972	Stop intersection, Garfield Ave. and Goode Ave. (Not codified)
53973	Stop intersection, Cote Brilliante Ave. and Goode Ave. (Not codified)
53974	Stop intersection, McNair Ave. and Pestalozzi Street (Not codified)
53975	Stop intersection, Ohio Ave. and Pestalozzi Street (Not codified)
53976	Stop intersection, Lexington Ave. and Warne Ave. (Not codified)
53977	Stop intersection, Cottage Ave. and Warne Ave. (Not codified)
53978	Stop intersection, Virginia Ave. and Caroline Street (Not codified)
53979	Stop intersection, Obear Ave. and Twentieth Street (Not codified)
53980	Stop intersection, Halliday Ave. and Arkansas Street (Not codified)

53981	School stop, Halliday Ave. and Louisiana Ave. (Not codified)
53982	Stop intersection, Missouri Ave. and Pestalozzi Street (Not codified)
53983	Stop intersection, McKean Ave. and Arkansas Ave. (Not codified)
53984	Stop intersection, Westminster Place and Lake Ave. (Not codified)
53985	Parking, Aubert Ave. (Not codified)
53986	Church stop, Euclid Ave. and Cote Brilliante Ave. and Warwick Ave. (Not codified)
53987	Stop intersection, Minerva Ave. and Academy Ave., repeals line 11, page 1159, § 850.030, 1960 Code (Not codified)
53988	Stop intersection, Carr Street and Eleventh Street (Not codified)
53989	Stop intersection, Howard Street and Twenty-fifth Street (Not codified)
53990	Amends § 887.040, 1960 Code, parking, Market Street (Not codified)
53991	Stop intersection, Penrose Street and Twenty-second Street (Not codified)
53992	Repeals line 36, page 1209, § 887.010, 1960 Code (Repealer)
53993	Amends district map 1960, changes zoning to "J" industrial district (Special)
53994	Adds §§ 11.050, 11.052, 11.054 and 11.056, 1960 Code, vacancies on board of aldermen (3.06.050—3.06.080)
53995	Adds § 393.110, 1960 Code, enforcing orders of building commissioner and health commisioner (Repealed by 56797)
53996	Vacates Commercial Street, alley, block 660 (Special)
53997	Amends §§ 335.590, 335.600, 335.610, 1960 Code, expense and general reserve funds (Ch. 4.18)
53998	Improvement, alley, block 5602 (Special) (Repealed by 54623)
53999	Parking, Osceola Street (Not codified)
54000	Designates alley, block 6006, one way (Not codified)
54001	Repeals Ord. 48057, parking on Arlington Ave. (Repealer)
54002	Construction of sidewalks on Kosciusko Street (Special)
54003	Amends § 70.010, 1960 Code, airport commission (Repealed by 54999)
54004	Amends Ord. 51034, authorizes amendatory agreement with redevelopment corporation (Special)
54005	Amends Table B, 1960 Code, fees (Repealed by 56797)
54006	Authorizes quit claim deed (Special)
54007	Parking, Hebert Street (Not codified)
54008	Parking, Angelrodt Street (Not codified)
54009	Parking, Branch Street (Not codified)
54010	Parking, Branch Street (Not codified)
54011	Parking, Ninth Street (Not codified)
54012	Parking, Ninth Street (Not codified)
54013	Stop intersection, Hadley Street and Madison Street (Not codified)
54014	Parking, Seventh Street (Not codified)
54015	Parking, Tenth Street (Not codified)
54016	Parking, Madison Street (Not codified)
54017	Parking, Madison Street (Not codified)
54018	Parking, Warren Street (Not codified)
54019	Parking, North Market Street (Not codified)
54020	Parking, Clinton Street (Not codified)
54021	Parking, Leffingwell Ave. (Not codified)
54022	Parking, Eleventh Street (Not codified)
54023	Stop intersection, Sullivan Ave. and Twenty-third Street (Not codified)
54024	Stop intersection, Palm Street and Glasgow Ave. (Not codified)
54025	Parking, Twenty-first Street (Not codified)
54026	Parking, Natural Bridge Ave. (Not codified)
54027	Parking, Eleventh Street (Not codified)
54028	Parking, Montgomery Street (Not codified)

54029 School stop, Taylor Ave. and Aldine Ave. (Not codified)

54030 Traffic-control signals, Cherokee Street and Jefferson Ave. (Not codified)

54031 Additional appropriation for election board (Special)

54032 Improvement, Victoria Street (Special)

54033 Appropriation for current expenses (Special)

54034 Authorizes agreement with St. Louis Terminal Distributing Co. (Special) (Repealed by 56450)

54035 Authorizes contracts for planning and construction of Jacob M. Lashly Branch Library (Special)

54036 Authorizes contracts for improvement of various streets (Special)

54037 Authorizes agreement with Laclede Gas Co. for easement (Special)

54038 Amends district map 1960, changes zoning to "H" commercial district (Special)

54039 Amends district map 1960, changes zoning to "J" industrial district (Special)

54040 Designates Victoria Ave. one-way street (Not codified)

54041 Traffic-control signals, Manchester Ave. and Waldemar Ave. (Not codified)

54042 Stop intersection, Louisiana Ave. and Eichelberger Street (Not codified)

54043 Improvement, alleys, block 5022-East (Special)

54044 Construction of sidewalks on Ohio Street (Special)

54045 Authorizes agreement with U. S. Government for housing code enforcement and public improvements (Special)

54046 Amends §§ 510.170 and 510.230, 1960 Code, repeals § 510.280, dogs (Ch. 10.04)

54047 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54048 Amends district map 1960, changes zoning to "F" local business district (Special)

54049 Authorizes agreement with land clearance for redevelopment authority for downtown sports stadium (Special)

54050 Vacates parts Sixth Street, Seventh Street, Poplar Street and alley, block 146 (Special)

54051 Authorizes easements to utility companies (Special)

54052 Authorizes contracts for street lighting (Special)

54053 Defines blighted area (Special)

54054 Emergency snow routes, adds Ch. 890, 1960 Code (Repealed by 57831)

54055 Authorizes contracts for improvement of St. Louis Ave. (Special)

54056 Authorizes lease of wharf (Special)

54057 Authorizes amendment to lease agreement with Ozark Airlines, Inc. (Special)

54058 Repeals line 36, page 1105, line 32, page 1109, § 850.020, 1960 Code, stop intersection (Repealer)

54059 Traffic-control signals, Jamieson Ave. and Lansdowne Ave. (Not codified)

54060 Repeals line 32, page 1164, line 28, page 1167, § 850.040, 1960 Code, playground stop (Repealer)

54061 Amends § 887.010, 1960 Code, parking, Salisbury Street (Not codified)

54062 Parking, Tyler Street (Not codified)

54063 Parking, Eleventh Street (Not codified)

54064 Fire lane, Mullanphy Street (Not codified)

54065 Parking, Tyler Street (Not codified)

54066 Parking, Nineteenth Street (Not codified)

54067 Parking, Mallinckrodt Street (Not codified)

54068 Repeals line 1, page 1067, line 9, page 1089, lines 40 and 41, page 1092, line 42, page 1094, line 44, page 1122, line 6, page 1123, line 32, page 1138, § 850.020, 1960 Code, stop intersections (Repealer)

54069	Parking, Glasgow Ave. (Not codified)
54070	Stop intersection, Glasgow Ave. and Bailey Ave. and Vest Ave. (Not codified)
54071	Parking, Bulwer Ave. (Not codified)
54072	Parking, Broadway (Not codified)
54073	Stops, Bremen Ave. and Vest Ave., Kossuth Ave. and Glasgow Ave. (Not codified)
54074	Fire lane, Withers Ave. (Not codified)
54075	Prohibits left turn from Pope Ave. to Broadway (Repealed by 57831)
54076	Speed limit, Riverview Boulevard, repeals line 4, page 1054C, § 832.050, 1960 Code (Repealed by 57831)
54077	Parking, West Florissant Ave. (Not codified)
54078	Parking, Twentieth Street (Not codified)
54079	Prohibits commercial vehicles, Highland Ave. (Not codified)
54080	Prohibits commercial vehicles, Terry Ave. (Not codified)
54081	Prohibits commercial vehicles, Northland Ave. (Not codified)
54082	Traffic-control signals, Laclede Ave. and Spring Ave. (Not codified)
54083	Traffic-control signals, Broadway and Chouteau Ave. and Fourth Street (Not codified)
54084	Parking, Twelfth Street (Not codified)
54085	Parking, Eighteenth Street (Not codified)
54086	Repeals line 15, page 1136, § 850.020, 1960 Code, stop intersection (Repealer)
54087	Stop intersection, Geyer Ave. and Ohio Ave. (Not codified)
54088	Parking, Chouteau Ave. (Not codified)
54089	Parking, Eighth Street (Not codified)
54090	Parking, Tenth Street (Not codified)
54091	Parking, Gratiot Street, Singleton Street, Fifteenth Street and Johnson Street (Not codified)
54092	Parking, Ohio Ave. (Not codified)
54093	Repeals line 8, page 1267, § 888.030, 1960 Code, parking (Repealer)
54094	Parking, Park Ave. (Not codified)
54095	Stop intersection, Eads Ave. and Ohio Ave. (Not codified)
54096	Repeals line 11, page 1275, § 888.030, 1960 Code, parking (Repealer)
54097	Parking, Chouteau Ave. (Not codified)
54098	Parking, Hickory Street (Not codified)
54099	Parking, Chouteau Ave. (Not codified)
54100	Parking, Ninth Street (Not codified)
54101	Repeals line 6, page 1229, § 887.020, 1960 Code, parking (Repealer)
54102	Parking, Lafayette Ave. (Not codified)
54103	Parking, Twelfth Street (Not codified)
54104	Stop intersection, Julia Ave. and Ninth Street (Not codified)
54105	Parking, Eighteenth Street (Not codified)
54106	Parking, Chouteau Ave. (Not codified)
54107	Various stop intersections (Not codified)
54108	Parking, Lafayette Ave. (Not codified)
54109	Parking, Missouri Ave. (Not codified)
54110	Repeals line 18, page 1227a, § 887.010, 1960 Code, parking (Repealer)
54111	Parking, Fourteenth Street (Not codified)
54112	Parking, Chouteau Ave. (Not codified)
54113	Parking, Park Ave. (Not codified)
54114	Parking, Convent Street (Not codified)
54115	Parking, Broadway (Not codified)
54116	Parking, Papin Street (Not codified)
54117	Parking, Papin Street (Not codified)
54118	Parking, Lafayette Ave. (Not codified)
54119	Parking, Carroll Street (Not codified)
54120	Parking, Second Street (Not codified)
54121	Prohibits commercial vehicles, alley, block 566 (Not codified)
54122	Parking, Twelfth Street (Not codified)
54123	Parking, Shenandoah Ave. (Not codified)

54124	Parking, Eighth Street (Not codified)
54125	Repeals line 12, page 1073, lines 38 and 39, page 1088, lines 26 and 27, page 1109, § 850.020, 1960 Code, stop intersections (Repealer)
54126	Repeals line 19, page 1165, line 24, page 1166, § 850.040, 1960 Code, playground stop (Repealer)
54127	Repeals line 14, page 1157, § 850.030, 1960 Code, school stop (Repealer)
54128	Amends § 887.010, 1960 Code, parking, Seventh Street (Not codified)
54129	Repeals line 22, page 1077, § 850.020, 1960 Code, stop intersection (Repealer)
54130	Repeals line 25, page 1166, line 30, page 1167, § 850.040, 1960 Code, playground stop (Repealer)
54131	Amends § 850.020, 1960 Code, stop intersection, Chouteau Ave. and Third Street (Not codified)
54132	Parking, McNair Ave. (Not codified)
54133	Parking, Barton Ave. (Not codified)
54134	Stop intersection, Kingshighway Boulevard and Chouteau Ave. (Not codified)
54135	Parking, Park Ave. (Not codified)
54136	Parking, Forest Park Boulevard (Not codified)
54137	Parking, Folsom Ave. (Not codified)
54138	Amends § 887.040, 1960 Code, parking, Tower Grove Ave. (Not codified)
54139	Parking, Olive Street (Not codified)
54140	Parking, Newstead Ave. (Not codified)
54141	Prohibits commercial vehicles, Garrison Ave. (Not codified)
54142	Stop intersection, Thurman Ave. and Blaine Ave. (Not codified)
54143	Parking, Washington Ave. (Not codified)
54144	Parking, Clayton Ave. (Not codified)
54145	Parking, Vandeventer Ave. (Not codified)
54146	Parking, Forest Park Ave. (Not codified)
54147	Parking, Vandeventer Ave. (Not codified)
54148	Parking, Duncan Ave. (Not codified)
54149	Amends § 888.020, 1960 Code, parking, Taylor Ave. (Not codified)
54150	Repeals line 20, page 1161, § 850.030, 1960 Code, school stop (Repealer)
54151	Amends § 887.010, 1960 Code, parking, Vandeventer Ave. (Not codified)
54152	Repeals line 3, page 1255, § 888.020, 1960 Code, parking (Repealer)
54153	Parking, Duncan Ave. (Not codified)
54154	Repeals line 11, page 1269, § 888.030, 1960 Code, parking (Repealer)
54155	Repeals line 12, page 1219, § 887.010, 1960 Code, parking (Repealer)
54156	Repeals line 8, page 1238, § 887.030, 1960 Code, parking (Repealer)
54157	Amends § 887.010, 1960 Code, parking, Cadet Ave. (Not codified)
54158	Repeals line 10, page 1153, line 4, page 1159, § 850.030, 1960 Code, school stop (Repealer)
54159	Parking, Washington Boulevard (Not codified)
54160	Amends district map 1960, changes zoning to "H" commercial district (Special)
54161	Appropriation for protective services to families and children (Special)
54162	Vacates parts Wyandotte Street, Ohio Ave., alleys, blocks 2707 and 2708 (Special)
54163	Vacates Chariton Street (Special)
54164	Vacates part Steins Street (Special)
54165	Vacates part alley, block 4955 (Special)
54166	Defines blighted area (Special)
54167	Authorizes contract with state highway commission for improvement of highway (Special)
54168	Traffic-control signals, Easton Ave. and Marcus Ave. (Not codified)
54169	Traffic-control signals, Delmar Boulevard and Pendleton Ave. (Not codified)
54170	Prohibits commercial vehicles, Vernon Ave. (Not codified)

54171 Designates Semple Ave. one-way street (Not codified)

54172 Parking, Boyle Ave. (Not codified)

54173 Various prohibited left turns (Repealed by 57831)

54174 Designates Chouteau Ave. and Taylor Ave. (Not codified)

54175 Playground stop, McPherson Ave. and Culver Way (Not codified)

54176 Parking, Laclede Ave. (Not codified)

54177 Parking, Laclede Ave. (Not codified)

54178 Repeals line 16, page 1227b, § 887.010, 1960 Code, parking (Repealer)

54179 Parking, Tower Grove Ave. (Not codified)

54180 Amends § 850.020, 1960 Code, stop intersection, Klemm Street and McRee Ave. (Not codified)

54181 Stop intersection, Taylor Ave. and Swan Ave. (Not codified)

54182 Amends § 888.040, 1960 Code, parking, Olive Street (Not codified)

54183 Parking, Sarah Street (Not codified)

54184 Parking, Clayton Ave. (Not codified)

54185 Stop intersection, Clayton Ave. and Taylor Ave. (Not codified)

54186 Parking, Laclede Ave. (Not codified)

54187 Parking, Duncan Ave. (Not codified)

54188 Parking, Market Street (Not codified)

54189 Parking, West Pine Boulevard (Not codified)

54190 Parking, Chouteau Ave. (Not codified)

54191 Parking, Forest Park Boulevard (Not codified)

54192 Parking, Sarpy Ave. (Not codified)

54193 Authorizes contract with St. Louis housing authority for project MO 19 development area (Special)

54194 Adds § 839.080(2), 1960 Code, traffic signals, repeals § 839.080(1), 1960 Code (Repealed by 57831)

54195 Changes Seventh Street to Stadium Plaza (Special)

54196 Vacates streets and alleys, Kosciusko project (Special)

54197 Vacates rights of ways, block 761 (Special)

54198 Traffic-control signals, South Skinker Boulevard (Not codified)

54199 Appropriation for current expenses (Special)

54200 Amends Ch. 149, 1960 Code, tax levies (5.26.010—5.26.050)

54201 Amends §§ 289.010, 289.020, 289.030, 289.040, 289.050, 289.060, adds §§ 289.070, 289.080, 289.090, 289.100 and 289.110, repeals § 289.032, 1960 Code, abandoned automobiles (Repealed by 56910)

54202 Street cleaning districts (Repealed by 57831)

54203 Amends district map 1960, changes zoning to "G" commercial district (Special)

54204 Amends district map 1960, changes zoning to "F" local business district (Special)

54205 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54206 Amends district map 1960, changes zoning to "E" multiple family dwelling district (Special)

54207 Requires notification of ward alderman when dedication is made (20.14.020)

54208 Vacates Singleton Street (Special)

54209 Vacates portion alley, block 849 (Special)

54210 Vacates Dorcas Street (Special)

54211 Vacates Sublette Ave., alley, block 4009E (Special)

54212 Amends §§ 265.010—265.130, repeals §§ 265.140—265.170, 1960 Code, excavations in streets and sidewalks (Ch. 20.30)

54213 Traffic-control signals, Kingshighway Boulevard and Cabane Ave. (Not codified)

54214 Amends § 696.295, 1960 Code, beauty shop license fees (Repealed by 60735)

54215 Vacates Second Street (Special)

54216 Adds § 2(52)—(57), amends § 2(16), Ord. 51358, driving on park roads (17.70.010)

54217 Submits proposed charter amendments to voters (Failed)

54218 Traffic-control signals, Windemere Place and Union Boulevard (Not codified)

54219 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54220 Vacates part Marceau Street (Special)

54221 Authorizes contracts for installation of utilities at Jefferson Memorial Area (Special)

54222 Amends district map 1960, changes zoning to "J" industrial district (Special)

54223 Authorizes deeds of dedication for parts of streets in Mill Creek Valley project area (Special)

54224 Authorizes lease of dock facilities (Special) (Repealed by 55155)

54225 Establishes St. Louis Ave. cutoff (Special)

54226 Amends § 885.065, 1960 Code, parking, zone 5 (Repealed by 57535)

54227 Authorizes lease of wharf (Special)

54228 Sale of property, block 3993 (Special)

54229 Female soliciting drinks (Title 14)

54230 Amends district map 1960, changes zoning to "J" industrial district (Special)

54231 Amends district map 1960, changes zoning to "B" two-family dwelling district (Special)

54232 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54233 Amends district map 1960, changes zoning to "H" commercial district (Special)

54234 Appropriation for acquisition of property for parking facilities (Special)

54235 Authorizes amendment to lease with U.S. government (Special)

54236 Amends district map 1960, changes zoning to "G" commercial district (Special)

54237 Dedication of land (Special)

54238 Ratifies amendment to project No. 9-23-034-C317, contract No. FA-CE-2067 (Special)

54239 Ratifies grant agreement, project No. 9-23-034-C621, contract No. FA66-CE-4396 (Special)

54240 Ratifies amendment to project No. 9-23- 034-6115, contract No. FA3-1394 (Special)

54241 Vacates part Morgan Ford Road (Special)

54242 Vacates Angelrodt Street (Special)

54243 Appropriation for acquiring land for Lambert-St. Louis Municipal Airport (Special)

54244 Addition to Lambert-St. Louis Municipal Airport (18.04.030I)

54245 Amends § 1, Ords. 51684 and 52890, addition to Lambert-St. Louis Municipal Airport (18.04.030H)

54246 Vacates part alley, block 552 (Special)

54247 Vacates Saint Ange Ave., renames remainder LaSalle Street (Special)

54248 Vacates Warren Street (Special)

54249 Appropriation for Lambert-St. Louis Municipal Airport (Special)

54250 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

54251 Authorizes concession agreement with Interstate Hosts, Inc. (Special)

54252 Vacates Twenty-third Street, alley, block 2261-EA (Special)

54253 Prohibits commercial vehicles, Pine Street (Not codified)

54254 Prohibits commercial vehicles, Chestnut Street (Not codified)

54255 Vacates part alley, block 2962 (Special)

54256 Vacates Carr Lane Ave., part alley, block 1825 (Special)

54257 Authorizes indenture and subordination with state for interstate highway structure (Special)

54258 Vacates alley between blocks 5500 and 4009E (Special)

54259 Stop intersection, Lilly Ave. and Wilson Ave. (Not codified)

54260 Amends § 887.010, 1960 Code, parking, January Ave. (Not codified)

54261 Stop intersection, Graham Street and Wade Ave. (Not codified)

54262 Prohibits commercial vehicle, Odell Street (Not codified)

54263 Designates Odell Street one-way street (Not codified)

54264 Fire lane, Arsenal Street (Not codified)

54265 Amends § 850.020, 1960 Code, stop intersection, Marconi Street and Bischoff Ave. (Not codified)

54266 Prohibits commercial vehicles, Wabada Ave. (Not codified)

54267 Stop intersection, Hereford Street and Shaw Ave. (Not codified)

54268 Parking, Southwest Ave. (Not codified)

54269 Parking, McRee Ave. (Not codified)

54270 Repeals line 26, page 121, § 887.010, 1960 Code, parking (Repealer)

54271 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54272 Amends district map 1960, changes zoning to "B" two-family dwelling district (Special)

54273 Adds § 391.500, 1960 Code, minimum housing standards (Repealed by 56797)

54274 Adds § 399.405, 1960 Code, vacant buildings for nonresidential use (Not codified)

54275 Parking, West Park Ave. (Not codified)

54276 Amends § 2, Ord. 54217, proposed charter amendment (Special)

54277 Conditional vacation, part Scott Ave. and McKinley Ave. (Special)

54278 Authorizes agreement with McDonnellAircraft Corp. (Special)

54279 Amends § 1, Ord. 53373, coroner and morgue employees (4.42.010)

54280 Directs special election for issuance of bonds (Special)

54281 Vacates alleys and streets in state highway right of way area (Special)

54282 Vacates alleys, blocks 4364 and 4520 (Special)

54283 Authorizes agreement for easement encroachment (Special)

54284 Authorizes lease of wharf (Special)

54285 Permits sounding locomotive bells, prohibits sounding horns or whistles (15.50.130)

54286 Amends district map 1960, changes zoning to "F" local business district (Special)

54287 Amends table A, 1960 Code, building permit fees (Repealed by 56797)

54288 Amends §§ 2116.1 and 2116.2, 1960 Code, building demolition (Repealed by 56797)

54289 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54290 Vacates Wise Ave. (Special)

54291 Stop intersection, Castleman Ave. and Lawrence Ave. (Not codified)

54292 Prohibits commercial vehicles, Kensington Ave. (Not codified)

54293 Parking, Ewing Street (Not codified)

54294 Parking, Garrison Ave. (Not codified)

54295 Amends § 887.040, 1960 Code, parking, Compton Ave. (Not codified)

54296 Stop intersection, Armand Place and Ohio Ave. (Not codified)

54297 Stop intersection, Victor Street and Texas Ave. (Not codified)

54298 Parking, Ohio Street (Not codified)

54299 Parking, Nebraska Ave. (Not codified)

54300 Parking, Ohio Ave. (Not codified)

54301 Designates Murdoch Ave. one-way street (Not codified)

54302 Parking, Mitchell Ave. (Not codified)

54303	School stop, Henrietta Ave. and Theresa Ave. (Not codified)
54304	Repeals line 22, page 1282e, § 888.040, 1960 Code, parking (Repealer)
54305	Repeals line 22, page 1263, § 888.030, 1960 Code, parking (Repealer)
54306	Repeals line 24, page 1097, § 850.020, 1960 Code, stop intersection (Repealer)
54307	Repeals line 3, page 1205, § 886.010, 1960 Code, parking (Repealer)
54308	Repeals fine 15, page 1090, § 850.020, 1960 Code, stop intersection (Repealer)
54309	Parking, Ohio Ave. (Not codified)
54310	Parking, Ohio Ave. (Not codified)
54311	Repeals line 1, page 1233, § 887.030, 1960 Code, parking (Repealer)
54312	Parking, Grand Boulevard (Not codified)
54313	Parking, Ohio Ave. (Not codified)
54314	Repeals line 37, page 1159, § 850.030, 1960 Code, school stop (Repealer)
54315	Repeals line 8, page 1227C, § 887.010, 1960 Code, parking (Repealer)
54316	Repeals line 7, page 1282H, § 888.040, 1960 Code, parking (Repealer)
54317	Parking, Fourteenth Street (Not codified)
54318	Parking, Eleventh Street (Not codified)
54319	Parking, Victor Street (Not codified)
54320	Repeals line 7, page 1178A, § 851.010, 1960 Code, one-way street (Repealer)
54321	Repeals line 3, page 1129, § 850.020, 1960 Code, stop intersection (Repealer)
54322	Repeals Ord. 53405, parking, Leffingwen Ave. (Repealer)
54323	Repeals lines 14 and 15, page 1251A, § 887.040, 1960 Code, parking (Repealer)
54324	School stop, Shenandoah Ave. and Louisiana Ave. (Not codified)
54325	Parking, Spruce Street (Not codified)
54326	Repeals line 20, page 1176, § 851.010, 1960 Code, one-way street (Repealer)
54327	Repeals line 2, page 1178g, § 851.030, 1960 Code, reversible street (Repealer)
54328	Parking, Magnolia Street (Not codified)
54329	Stop intersection, Garrison Ave. and North Market Street (Not codified)
54330	School stop, Vandeventer Ave. and Sullivan Ave. (Not codified)
54331	Various school stops (Not codified)
54332	Fire lane, Maiden Lane (Not codified)
54333	Parking, Mullanphy Street and Howard Street (Not codified)
54334	Various stop intersections (Not codified)
54335	Parking, Monroe Street (Not codified)
54336	School stop, Thirteenth Street and Clinton Street (Not codified)
54337	Repeals line 26, page 1133, § 850.020, 1960 Code, stop intersection (Repealer)
54338	Parking, Ninth Street (Not codified)
54339	Parking, Grand Boulevard (Not codified)
54340	Prohibits commercial vehicles, Devonshire Ave. (Not codified)
54341	Repeals line 39, page 1166, § 850.040, 1960 Code, playground stop (Repealer)
54342	Repeals line 9, page 1164, § 850.040, 1960 Code, playground stop (Repealer)
54343	Repeals Ord. 45496, school stop (Repealer)
54344	Repeals Ord. 53470, stop intersection (Repealer)
54345	Amends § 1, Ord. 53829, parking, Oregon Ave. (Repealed by 54345)
54346	Repeals line 43, page 1136, § 850.020, 1960 Code, stop intersection (Repealer)
54347	Parking, Ninth Street (Not codified)
54348	Stop intersection, Eighteenth Street and Pestalozzi Street (Not codified)
54349	Amends § 887.030, 1960 Code, parking, Lynch Street (Not codified)
54350	Parking, McNair Ave. (Not codified)
54351	Stop intersection, Pestalozzi Street and Virginia Ave. (Not codified)
54352	Repeals line 4, page 1163, § 850.030, 1960 Code, school stop (Repealer)

54353 School stop, Pestalozzi Street and Wisconsin Ave. (Not codified)

54354 School stop, Utah Street and Lemp Ave. (Not codified)

54355 School stop, Jefferson Ave. and Wyoming Street (Not codified)

54356 Parking, Seventh Street (Not codified)

54357 Parking, Pennsylvania Ave. (Not codified)

54358 Parking, Seventh Street (Not codified)

54359 School stop, Lynch Street and Salena Street (Not codified)

54360 Parking, Lemp Ave. (Not codified)

54361 Parking, Cherokee Street (Not codified)

54362 Parking, Sidney Street (Not codified)

54363 Repeals Ord. 39011, school stop, Lynch Street and Wisconsin Ave. (Repealer)

54364 Repeals line 41, page 1166, § 850.040, 1960 Code, playground stop (Repealer)

54365 Repeals line 10, page 1281, § 888.030, 1960 Code, parking (Repealer)

54366 Amends § 887.010, 1960 Code, parking, Compton Ave. (Not codified)

54367 Amends § 888.040, 1960 Code, parking, Broadway (Not codified)

54368 Parking, Utah Street (Not codified)

54369 Parking, Utah Street (Not codified)

54370 Repeals line 4, page 1252, § 888.010, 1960 Code, parking (Repealer)

54371 School stop, Hampton Ave. and Holly Hills Ave. (Not codified)

54372 Repeals line 30, page 1169, § 850.050, 1960 Code, church stop (Repealer)

54373 Sale of property, out lot 119 (Special)

54374 Sale of property, block 3149 (Special)

54375 Repeals line 14, page 1173, § 851.010, 1960 Code, one-way street (Repealer)

54376 Authorizes agreement for construction of sewers (Special)

54377 Stop intersection, Hereford Street and Daggett Ave. (Not codified)

54378 Stop intersection, Macklind Ave. and Daggett Ave. (Not codified)

54379 Repeals line 27, page 1161, § 850.030, 1960 Code, school stop (Repealer)

54380 Traffic-control signals, Ninth Street and O'Fallon Ave. (Not codified)

54381 Parking, Gregg Ave. (Not codified)

54382 Stop intersection, Pennsylvania Ave. and Miami Street (Not codified)

54383 Stop intersection, Iowa Ave. and Miami Street (Not codified)

54384 Stop intersection, Minnesota Ave. and Keokuk Street (Not codified)

54385 Parking, California Ave. (Not codified)

54386 School stop, Jefferson Ave. and Winnebago Street (Not codified)

54387 School stop, Broadway and Missouri Ave. (Not codified)

54388 Parking, Nebraska Ave. (Not codified)

54389 School stop, Meramec Street and Virginia Ave. (Not codified)

54390 Repeals line 22, page 1157, § 850.030, 1960 Code, school stop (Repealer)

54391 Amends § 888.040, 1960 Code, parking, Broadway (Not codified)

54392 Repeals line 8, page 1244, § 887.040, 1960 Code, parking (Repealer)

54393 Stop intersection, Michigan Ave. and Winnebago Street (Not codified)

54394 Stop intersection, Miami Street and Arkansas Ave. (Not codified)

54395 Stop intersection, Michigan Ave. and Potomac Street (Not codified)

54396 Parking, Broadway (Repealed by 55254)

54397 Parking, Grand Boulevard (Not codified)

54398 Repeals Ord. 39011, school stop, Broadway and Wisconsin Ave. (Repealer)

54399 Speed limit, Gasconade Street and Ohio Ave. (Repealed by 57831)

54400 Prohibits commercial vehicles, Ohio Ave., repeals Ord. 52112 (Not codified)

54401 Amends § 820.050, 1960 Code, defines central traffic district (Repealed by 57831)

54402 Parking, Wise Ave. (Not codified)

54403 Amends § 1, Ord. 54255, conditional vacation, alley, block 3692 (Special)

54404 Amends § 1, Ord. 53564, ward boundaries (Ch. 2.12)

54405 Beekeeping (Ch. 15.140)

54406 Sale of property, blocks 4097-S and 4096 (Special)

54407 Authorizes release of St. Louis Training School (Special)

54408 Parking, Hodiamont Ave. (Repealed by 55612)

54409 Amends district map 1960, changes zoning to "J" industrial district (Special)

54410 Amends district map 1960, changes zoning to "J" industrial district (Special)

54411 Prohibits commercial vehicles, Northland Ave. (Not codified)

54412 Prohibits commercial vehicles, Arlington Ave. (Not codified)

54413 Prohibits commercial vehicles, Maffitt Ave. (Not codified)

54414 Stop intersection, Rosedale Ave. and Rosedale Ave. Cutoff (Not codified)

54415 Parking, Delmar Boulevard (Not codified)

54416 Parking, Hamilton Ave. (Not codified)

54417 Amends § 888.040, 1960 Code, parking, Kuhs Place (Not codified)

54418 Parking, Maple Ave. (Not codified)

54419 Repeals line 35, page 1160, line 37, page 1167, §§ 850.030 and 850.040, 1960 Code, stop intersections (Repealer)

54420 Parking, Rosedale Ave. (Not codified)

54421 Repeals line 4, page 1282J, § 889.010, 1960 Code, parking (Repealer)

54422 Prohibits commercial vehicles, Aubert Ave. (Not codified)

54423 Amends district map 1960, changes zoning to "G" commercial district (Special)

54424 Amends § 839.080(2), 1960 Code, traffic signals (Repealed by 57831)

54425 Approves rehabilitation plan for Mullanphy Area (Special)

54426 Repeals line 2, page 1251c, § 887.040, 1960 Code, parking (Repealer)

54427 Parking, Marconi Ave. (Not codified)

54428 Prohibits commercial vehicles, Dugan Ave. (Not codified)

54429 Traffic-control signals, Brannon Ave., Columbia Ave. and Southwest Ave. (Not codified)

54430 Left turns from Broadway to Keokuk Street (Repealed by 57831)

54431 Left turns from Jefferson Ave. to Cherokee Street (Repealed by 57831)

54432 Sale of property, block 3124 (Special).

54433 Names interstate highway bridge Bernard F. Dickmann Gateway Bridge (Special)

54434 Sale of property, block 2260-w (Special)

54435 Amends district map 1960, changes zoning to "B" two-family district (Special)

54436 Amends district map 1960, changes zoning to "B" two-family district (Special)

54437 Amends § 49.020, 1960 Code, treasurer employee appointment and salaries (4.26.020)

54438 Amends § 51.010, 1960 Code, parking meter division employees (4.30.010)

54439 Provides for special election for issuance of bonds (Special)

54440 Sale of property, block 546 (Special)

54441 Amends district map 1960, changes zoning to "F" local business district (Special)

54442 Authorize agreement with U. S. government for demolition of unsafe housing and relocation of persons displaced (Special)

54443 Requires motorcycle riders to wear helmets (Repealed by 57831)

54444 Authorizes contracts for improvements at Howard Bend Pumping Station and Purification Plant (Special)

54445 Vacates part Race Course Ave. (Special)

54446 Appropriation for demolition of unsafe buildings (Special)

54447 Authorizes contract for furnishing electric power to public places (Special)

54448 Amends § 388.010, 1960 Code, defines parking lot or station (Ch. 8.70)

54449 Adds §§ 2118.26 and 2118.27, 1960 Code, permit fees (Repealed by 56797)

54450 Authorizes quit claim deed to land clearance for redevelopment authority (Special)

54451 Amends § 147.110, 1960 Code, penalties for delinquent or fraudulent manufacturers statements (8.54.080, 8.54.100)

54452 Amends § 146.040, 1960 Code, penalties for delinquent or fraudulent merchants statements (8.56.060, 8.56.070)

54453 Amends § 57.020, 1960 Code, coroner and morgue employee salaries (4.42.010)

54454 Amends § 54.010, 1960 Code, sheriff's office employee salaries (Ch. 4.36)

54455 Addition to Lambert-St. Louis Municipal Airport (18.04.030J)

54456 School stop, Union Boulevard and Harney Ave. (Not codified)

54457 Designates Alexander Street one-way street (Not codified)

54458 Parking, Walsh Street (Not codified)

54459 Designates Ray Ave. one-way street (Not codified)

54460 School stop, Taft Ave. and Alaska Ave. (Not codified)

54461 Stop intersection, Itaska Street and Newport Ave. (Not codified)

54462 Parking, Thirty-eighth Street (Not codified)

54463 Stop intersection, Louisiana Ave. and Eichelberger Street (Not codified)

54464 Stop intersection, Taft Ave. and Louisiana Ave. (Not codified)

54465 Traffic-control signals, Delor Street and Grand Boulevard (Not codified)

54466 Classified service and compensation plan (Ch. 4.10)

54467 School stop, Livingston Ave. and Wilmington Ave. (Not codified)

54468 Stop intersection, Louisiana Ave. and Osceola Street, repeals line 19, page 1158, fine 43, page 1166, §§ 850.030 and 850.040, 1960 Code (Not codified)

54469 Parking, Delor Street (Not codified)

54470 Parking, Delor Street (Not codified)

54471 Parking, Walsh Street (Not codified)

54472 Prohibits commercial vehicles, Frieda Ave. (Not codified)

54473 Prohibits commercial vehicles, Walsh Street (Not codified)

54474 Stop intersection, Thirty-seventh Street and Taft Ave. (Not codified)

54475 Designates Steffens Ave. one-way street (Not codified)

54476 Parking, Walsh Street (Not codified)

54477 Prohibits commercial vehicles, Steffens Ave. (Not codified)

54478 Stop intersection, Kraft Ave. and Nashville Ave. (Not codified)

54479 Authorizes use agreement with Remmert-Wemer Inc. for facilities at Lambert-St. Louis Municipal Airport (Special)

54480 Amends §§ 592.010 and 592.020, 1960 Code, vehicle tolls on Douglas MacArthur Bridge (Repealed by 56514)

54481 Vacates walkways (Special)

54482 Vacates part Morgan Ford Road, authorizes quit claim deed (Special)

54483 Amends § 48.010, 1960 Code, magistrate court employees salaries (4.24.010)

54484 Amends § 53.010, 1960 Code, recorder of deeds employee salaries (Ch. 4.34)

54485 Amends district map 1960, changes zoning to "B" two-family dwelling district (Special)

54486	Amends district map 1960, changes zoning to "J" industrial district (Special)
54487	Additional appropriation for election board (Special).
54488	Appropriation for community action agency (Special)
54489	Amends Ch. 442, 1960 Code, Robert Koch Hospital (12.16)
54490	Declares result of election for issuance of bonds (Special)
54491	Directs issuance of bonds (Special)
54492	Authorizes contract for facilities in medium security institution (Special)
54493	Vacates alley (Special)
54494	Authorizes contracts for construction of community center (Special)
54495	Amends § 46.010, 1960 Code, board of aldermen employee salaries (4.22.010)
54496	Sale or possession of glue solvents, cements or shellac thinners to persons under 18 (11.60 Part I)
54497	Prohibits commercial vehicles, Park Lane Ave. (Not codified)
54498	Deposit prior to building permit or occupancy permit (20.26.140)
54499	Vacates alley (Special)
54500	Vacates part alley (Special)
54501	Alley, block 4658-S limited to pedestrian traffic (17.50)
54502	Prohibits commercial vehicles, Blackstone Ave. (Not codified)
54503	Prohibits commercial vehicles, Loughborough Ave. (Not codified)
54504	Prohibits commercial vehicles, Salzburger Ave. (Not codified)
54505	Traffic-control signals, Morgan Ford Road and Robert Ave. (Not codified)
54506	Prohibits commercial vehicles, Highland Ave. (Not codified)
54507	Traffic-control signals, Chippewa Street and Spring Ave. (Not codified)
54508	Prohibits commercial vehicles, Vernon Ave. (Not codified)
54509	Parking, Tennessee Ave. (Not codified)
54510	Repeals Ord. 53670 (Repealer)
54511	Repeals line 5, page 1077, § 850.020, 1960 Code (Repealer)
54512	Repeals Ord. 53316 (Repealer)
54513	Stop intersection, Forest Ave. and Waldemar Ave. (Not codified)
54514	Amends § 888.040, 1960 Code, parking, Hodiamont Ave. (Not codified)
54515	Parking, Rosedale Ave. (Not codified)
54516	Amends § 887.040, 1960 Code, parking, Des Peres Ave. (Not codified)
54517	Parking, Lindell Boulevard (Not codified)
54518	Parking, Lindell Boulevard (Not codified)
54519	Parking, Forest Park Parkway (Not codified)
54520	Parking, Hamilton Ave. (Not codified)
54521	Parking, Hamilton Ave. (Not codified)
54522	School stop, Kingsbury Ave. and Nina Place (Not codified)
54523	School stop, Westminster Place and Laurel Street (Not codified)
54524	Parking, Noonan Ave. (Not codified)
54525	Designates Clemens Ave. one-way street (Not codified)
54526	Designates Enright Ave. one-way street (Not codified)
54527	Parking, Forest Ave. (Not codified)
54528	Amends § 887.040, 1960 Code, parking, Market Street (Not codified)
54529	Amends § 887.040, 1960 Code, parking, Jefferson Ave. (Not codified)
54530	Amends § 887.040, 1960 Code, parking, Ninth Street (Not codified)
54531	Parking, Poplar Street, Spruce Street, Thirteenth Street (Not codified)
54532	Parking, Seventh Street (Not codified)
54533	Amends § 887.010, 1960 Code, parking, Eighteenth Street (Not codified)
54534	Amends § 888.030, 1960 Code, parking, Thirteenth Street (Not codified)

54535	Parking, Chestnut Street, repeals line 21, page 1244, § 887.040, 1960 Code (Not codified)
54536	Left turns from Twelfth Street to Gay Street or Lucas Ave. (Repealed by 57831)
54537	Parking, Walnut Street and Seventh Street (Not codified)
54538	Parking, Hadley Street (Not codified)
54539	Parking, Jefferson Ave. (Not codified)
54540	Parking, Miami Street (Not codified)
54541	Repeals line 14, page 1263, § 888.030, 1960 Code (Repealer)
54542	Parking, Twenty-second Street (Not codified)
54543	Parking, Franklin Ave. (Not codified)
54544	Parking, Twentieth Street (Not codified)
54545	Parking, Delmar Boulevard (Not codified)
54546	Amends § 1, Ord. 53162, parking, Seventh Street (Not codified)
54547	Repeals line 5, page 1233, § 887.030, 1960 Code (Repealer)
54548	Amends § 887.040, 1960 Code, parking, Locust Street (Not codified)
54549	Repeals line 27, page 1227d, § 887.010, 1960 Code (Repealer)
54550	Amends § 887.030, 1960 Code, parking, Locust Street (Not codified)
54551	Parking, Chestnut Street (Not codified)
54552	Parking, Third Street (Not codified)
54553	Parking, Twelfth Street (Repealed by 55295)
54554	Parking, Delmar Boulevard (Not codified)
54555	Parking, Delmar Boulevard (Not codified)
54556	Repeals Ord. 53095 (Repealer)
54557	Parking, Twenty-first Street (Not codified)
54558	Repeals line 15, page 1184, line 7, page 1190A, § 853.010, 1960 Code (Repealer)
54559	Stop intersection, Chestnut Street and Jefferson Ave. (Not codified)
54560	Repeals line 2, page 1160, § 850.030, 1960 Code (Repealer)
54561	Stop intersection, Lucas Ave. and Twenty-second Street (Not codified)
54562	Repeals lines 32 and 33, page 1184, § 853.010, 1960 Code (Repealer)
54563	Stop intersection, Lucas Ave. and Twenty-first Street (Not codified)
54564	Parking, Eleventh Street (Not codified)
54565	Repeals line 21, page 1096, line 32, page 1143, § 850.020, 1960 Code (Repealer)
54566	Repeals lines 13, 14, 15, 16 and 20, page 1091, § 850.020, 1960 Code (Repealer)
54567	Parking, Ninth Street and Tenth Street (Not codified)
54568	Repeals lines 10 and 25, page 25, line 4, page 1081, line 19, page 1082, lines 7 and 9, page 1096, lines 12 and 13, page 1117, line 2, page 1129, lines 13 and 18, page 1138, lines 13 and 17, page 1147, § 850.020, 1960 Code (Repealer)
54569	Designates Third Street one-way street (Not codified)
54570	Designates Broadway one-way street (Not codified)
54571	Traffic-control signals, various intersections (Not codified)
54572	Traffic-control signals, Olive Street and Sixteenth Street (Not codified)
54573	Parking, Twenty-first Street, repeals line 2, page 1242, § 887.030, 1960 Code (Not codified)
54574	Parking, Broadway (Repealed by 55253)
54575	Prohibits commercial vehicles, Euclid Ave. (Not codified)
54576	Prohibits commercial vehicles, Granville Place (Not codified)
54577	Parking, Belt Ave. (Not codified)
54578	Amends § 887.030, 1960 Code, parking, Aubert Ave. (Not codified)

54579 Stop intersection, Granville Place and Ridge Ave. (Not codified)

54580 Stop intersection, Academy Ave. and Ridge Ave. (Not codified)

54581 School stop, Belt Ave. and Minerva Ave. (Not codified)

54582 Amends § 851.010, Maple Ave. one-way street (Not codified)

54583 School stop, Bartmer Ave. and Maple Place (Not codified)

54584 Designates Laurel Street one-way street (Not codified)

54585 Designates Granville Place one-way street (Not codified)

54586 Amends § 850.020, 1960 Code, stop intersection, Academy Ave. and Wells Ave. (Not codified)

54587 Repeals line 27, page 1092, line 40, page 1125, § 850.020, 1960 Code (Repealer)

54588 Amends § 850.020, 1960 Code, stop intersection, Cabanne Ave. and Academy Ave. (Not codified)

54589 Repeals line 5, page 1069, § 850.020, 1960 Code (Repealer)

54590 Repeals Ord. 53180 (Repealer)

54591 Prohibits commercial vehicles, Victoria Ave. (Not codified)

54592 Parking, Austria Ave. (Not codified)

54593 Parking, Weber Road (Not codified)

54594 Designates Alma Ave. one-way street (Not codified)

54595 Repeals line 4, page 1253, § 888.010, 1960 Code (Repealer)

54596 School stop, Kingshighway Boulevard and Schollmeyer Ave. (Not codified)

54597 Parking, Morgan Ford Road (Not codified)

54598 Stop intersection, Childress Ave. and Rhodes Ave. (Not codified)

54599 Stop intersection, Goodfellow Boulevard and Wabada Ave. (Not codified)

54600 Designates Blow Street one-way street (Not codified)

54601 Repeals Ord. 53223 (Repealer)

54602 Amends § 2402.7, 1960 Code, disposal of deteriorated explosives (Repealed by 56797)

54603 Vacates various streets and alleys (Special)

54604 Authorizes payment of costs for improvement of various neighborhood rehabilitation areas (Special)

54605 Improvement, alley (Special)

54606 Improvement, Jasper Park (Special)

54607 Amends § 2419.8, 1960 Code, sprinklers (Repealed by 56797)

54608 Sale of easement (Special)

54609 Authorizes contracts for construction in Tower Grove Park (Special)

54610 Prohibits commercial vehicles, alley (Not codified)

54611 Prohibits commercial vehicles, Clifton Ave. (Repealed by 57831)

54612 Parking, Spring Ave. (Not codified)

54613 Parking, Vandeventer Ave. (Not codified)

54614 School stop, Oak Hill Ave. and Juniata Street (Not codified)

54615 Parking, Arsenal Street (Not codified)

54616 Parking, Tower Grove Place (Not codified)

54617 Parking, Thurman Ave. (Not codified)

54618 Amends § 887.040, 1960 Code, parking, Arsenal Street (Not codified)

54619 School stop, Shaw Boulevard and Klemm Street (Not codified)

54620 Parking, Spring Ave. (Not codified)

54621 Stop intersection, Oregon Ave. and Keokuk Street (Not codified)

54622 Amends district map 1960, changes zoning to "F" local business district (Special)

54623 Repeals Ord. 53998 (Repealer)

54624 Authorizes acceptance of statue (Special)

54625 Vacates part Illinois Ave. (Special)

54626 Amends district map 1960, changes zoning to "H" commercial district (Special)

54627	School stop, Fairview Ave. and Hereford Street (Not codified)
54628	Amends § 208.030, 1960 Code, prisoner board allowance (16.12.030)
54629	Establishes Goodfellow Boulevard cut-off (Special)
54630	Amends § 4, Ord. 48606, § 473.050, 1960 Code, meat and meat products (11.48.140)
54631	Parking, Parker Ave. (Not codified)
54632	Sale of property, block (Special)
54633	Traffic-control signals, Blair Ave. and East Grand Boulevard (Not codified)
54634	Authorizes quit claim deed to Industrial Sugars, Inc. (Special)
54635	Amends §§ 913.020, 913.050, 1960 Code, "J" industrial district area and use regulations (Title 26)
54636	Prohibits commercial vehicles, Ferris Ave. (Not codified)
54637	Amends § 888.020, 1960 Code, parking, Fyler Ave. (Not codified)
54638	Stop intersection, Hartford Street and Bent Ave., repeals line 23, page 1153, § 850.030, 1960 Code (Not codified)
54639	Stop intersection, Klemm Ave. and Flad Ave. (Not codified)
54640	Various stop intersections (Not codified)
54641	Designates Utah Street one-way street (Not codified)
54642	Parking, Magnolia Ave. (Not codified)
54643	Repeals line 19, page 1159, § 850.030, 1960 Code (Repealer)
54644	Parking, Wyoming Street (Not codified)
54645	Parking, Brannon Ave. (Not codified)
54646	Repeals line 7, page 1258, § 888.020, 1960 Code (Repealer)
54647	Parking, Morgan Ford Road (Not codified)
54648	Amends § 888.030, 1960 Code, parking, Thurman Ave. (Not codified)
54649	Parking, Utah Street (Not codified)
54650	Repeals line 7, page 1132, § 850.020, 1960 Code (Repealer)
54651	Stop intersection, Thurman Ave. and Flora Place (Not codified)
54652	Stop intersection, Wyoming Street and Roger Place (Not codified)
54653	Parking, Campbell Ave. (Not codified)
54654	Amends § 888.030, 1960 Code, parking, Muriel Street (Not codified)
54655	Parking, Baden Ave. (Not codified)
54656	Repeals line 40, page 1163, § 850.030, 1960 Code (Repealer)
54657	Parking, Penrose Street (Not codified)
54658	School stop, Tower Grove Ave. and DeTonty Street (Not codified)
54659	Parking, Oakhill Ave. (Not codified)
54660	Stop intersection, Fyler Ave. and Brannon Ave. (Not codified)
54661	Repeals line 16, page 1143, § 850.020, 1960 Code (Repealer)
54662	Stop intersection, Union Boulevard and Lilian Ave. (Not codified)
54663	School stop, Union Boulevard and Thekla Ave. (Not codified)
54664	School stop, Kingshighway Boulevard and Thekla Ave. (Not codified)
54665	Designates Bircher Boulevard (outer Roadway) one-way street (Not codified)
54666	Parking, Rosalie Street (Not codified)
54667	Parking, Bulwer Ave. (Not codified)
54668	Prohibits commercial vehicles, Canaan Ave. (Not codified)
54669	Repeals line 12, page 1232, § 887.030, 1960 Code (Repealer)
54670	Repeals line 6, page 1262, § 888.030, 1960 Code (Repealer)
54671	Amends § 888.040, 1960 Code, parking, Grape Ave. (Not codified)
54672	Amends § 888.030, 1960 Code, parking, Broadway (Not codified)
54673	Parking, East Taylor Ave. (Not codified)
54674	Parking, Broadway (Not codified)

54675	Parking, Union Boulevard (Not codified)
54676	School stop, Kingshighway Boulevard and Harney Ave. (Not codified)
54677	School stop, Broadway and Hornsby Ave. (Not codified)
54678	School stop, Newby Ave. and Veronica Ave. (Not codified)
54679	School stop, Church Road and McLaran Ave. (Not codified)
54680	School stop, Halls Ferry Road and Veronica Ave. (Not codified)
54681	Stop intersection, Canaan Ave. and Newby Street, repeals line 29, page 1153, § 850.030, 1960 Code (Not codified)
54682	Parking, Clarence Ave. (Not codified)
54683	Various stop intersections (Not codified)
54684	Stop intersection, Queens Ave. and Harney Ave. (Not codified)
54685	Repeals line 6, page 1155, line 13, page 1158, § 850.030, 1960 Code (Repealer)
54686	Parking, Quida Ave. (Not codified)
54687	Stop intersection, Ohio Ave. and Potomac Street (Not codified)
54688	Stop intersection, Osage Street and Ohio Ave. (Not codified)
54689	Vacates Thirteenth Street (Special)
54690	Amends district map 1960, changes zoning to "J" industrial district (Special)
54691	Amends § 715.040, 1960 Code, dance halls (8.32.040)
54692	Authorizes contracts for improvement, Oakland Ave. and Skinker Boulevard (Special)
54693	Authorizes contracts for modernization of municipal jail building (Special)
54694	Amends § 1, Ord. 54496, sale or possession of glue or solvents by persons under 18 (11.60.010)
54695	Left turns, Hampton Ave. and Eichelberger Street (Repealed by 57831)
54696	Amends § 882.020, adds § 882.015, 1960 Code, impounding vehicles (Repealed by 56910)
54697	Restricts use of Hodiamont right-of-way to buses and emergency vehicles (Repealed by 57831)
54698	Parking, McKinley Drive (17.70.030—17.70.070)
54699	Air pollution control, repeals §§ 1, 2, 3, 7, 8, 9, 10, 13, 14, 16, 24, 25, 26 of Ord. 50163, part Chs. 385, 386 and 387, 1960 Code (11.34)
54700	Authorizes contracts for construction of fire engine houses (Special)
54701	Authorizes contracts for construction of incinerators (Special)
54702	Authorizes contracts for projects at various hospitals (Special)
54703	Authorizes contracts for street lighting (Special)
54704	Authorizes acceptance of property (Special)
54705	Amends §§ 24.100 and 24.110, 1960 Code, landmarks and urban design commission (Repealed by 57986)
54706	Construction of sidewalks on Laura Ave. (Special)
54707	Authorizes studies and designs for grade crossings and new bridges (Special)
54708	Establishes land as part of Mississippi River flood control project (Special)
54709	Establishes land as part of Mississippi River flood control project (Special)
54710	Authorizes contracts for construction of Blackstone relief sewer (Special)
54711	Amends § 447.010, 1960 Code (Repealer)
54712	Authorizes contracts for improvement, Compton Ave. (Special)
54713	Supplementary appropriations for current expenses (Special)
54714	Sale of property (Special)

54715 Amends §§ 265.030, 265.040, 265.100, 1960 Code, excavations in streets, sidewalks and alleys (20.30.030, 20.30.040, 20.30.100—20.30.120)

54716 Vacates alley (Special)

54717 Authorizes conveyance of land to Missouri Pacific Railroad Co. (Special)

54718 Amends § 50.010, 1960 Code, license collector employees (Ch. 4.28)

54719 Vending food or beverages (Repealed by 64569)

54720 Vacates part Pine Street (Special)

54721 Authorizes deeds of dedication (Special)

54722 Appropriations for current expenses (Special)

54723 Amends Ch. 149, 1960 Code, tax levies (5.26.010—5.26.050)

54724 Amends § 152.030, 1960 Code, gross receipt tax on electric utilities (23.30.030)

54725 Amends §§ 153.010, 153.070, 1960 Code, gross receipt tax on telephone and telegraph companies (23.32.010, 23.32.050, 23.32.070)

54726 Amends §§ 154.020, 154.040, 1960 Code, gross receipt tax on telephone companies (23.34.020, 23.34.040)

54727 Amends §§ 155.010, 155.020, 155.040 and 155.050, 1960 Code, gross receipt tax on gas companies (23.36.020, 23.36.040, 23.36.050)

54728 Amends §§ 156.010 and 156.020, 1960 Code, gross receipt tax on waterworks revenue fund (23.38)

54729 Offense to mutilate flag or ensign of U.S. (15.22)

54730 Amends district map 1960, changes zoning to "G" commercial district (Special)

54731 Sale of certain property (Special)

54732 Prohibits commercial vehicles, Potomac Street (Not codified)

54733 Amends § 909.060, 1960 Code, "F" local business district area regulations (Title 26)

54734 Vacates Poplar Street (Special)

54735 Amends district map 1960, changes zoning to "F" local business district (Special)

54736 Vacates St. Joseph Street (Special)

54737 Establishes convention and tourism bureau, levies tax on hotels, motels and restaurants (Repealed by 54944)

54738 Declares result of election (Special)

54739 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

54740 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

54741 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

54742 Sale of property (Special)

54743 Parking, grounds of juvenile detention center (17.60)

54744 Authorizes contracts for work at Howard Bend pumping station and purification plant (Special)

54745 Authorizes contract for work at water distribution system (Special)

54746 Partial improvement of Wiel Ave. (Special)

54747 Vacates Seventeenth Street, Walnut Street, repeals Ord. 52771 (Special)

54748 Requires building wrecker bond (Repealed by 63703)

54749 Amends § 31.030, 1960 Code, commissioner of business development (Repealed by 56708)

54750 Vacates alley (Special)

54751 Vacates Westminster Place and alley (Special)

54752 Vacates alley (Special)

54753 Authorizes acquisition of site for building for division of fire (Special)

54754 Authorizes acquisition of site for building for division of fire (Special)

54755 Deposit for sidewalk before issuance of building permit or occupancy permit (20.26.140)

54756 Authorizes acquisition of site for construction of central facility for department of street and public utilities (Special)

54757 Appropriation for acquisition for site for building for department of streets and public utilities (Special)

54758 Prohibits commercial vehicles, Pernod Ave. (Not codified)

54759 Amends § 915.030, 1960 Code, height exceptions (Title 26)

54760 Authorizes acceptance of fund for traffic control signals at Union Boulevard and Margaretta Ave. (Special)

54761 Conditional vacation air rights alley, block 516 (Special)

54762 Vacates Lilly Ave. (Special)

54763 Vacates alley (Special)

54764 Authorizes application for agreement with U.S. government for housing code enforcement (Special)

54765 Amends district map 1960, changes zoning to "G" commercial district (Special)

54766 Vacates alley (Special)

54767 Vacates alley (Special)

54768 Vacates Newman Ave. (Special)

54769 Adds §§ 769.010—769.070, 1960 Code, alcoholism (Repealed by 57447)

54770 Sale of property (Special)

54771 Sale of property (Special)

54772 Establishes model city agency (Repealed by 55660)

54773 Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)

54774 Authorizes contracts for construction of engine houses (Special)

54775 Authorizes lease agreement with Hertz Corp. for land at Lambert-St. Louis Municipal Airport (Special)

54776 Vacates portion alley, block 182, all Benoist Court (Special)

54777 Supplementary appropriation for building commissioner (Special)

54778 Amends district map 1960, changes zoning to "J" industrial district (Special)

54779 Amends §§ 335.010, 335.020, 1960 Code, firemen's retirement system (4.18.010, 4.18.015)

54780 Amends § 335.290, 1960 Code, firemen's retirement system (4.18.160)

54781 Amends district map 1960, changes zoning to "J" industrial district (Special)

54782 Authorizes contract with U. S. government for urban mass transportation demonstration grant (Special)

54783 Authorizes contracts for development of various parks and playgrounds (Special)

54784 Defines blighted area (Special)

54785 Appropriation for Yalem Center revolving fund (Special)

54786 Amends district map 1960, changes zoning to "H" commercial district (Special)

54787 Improvement, Brown Ave. (Special)

54788 Establishes planned industrial expansion authority (3.84)

54789 Authorizes application for agreement with U.S. government for demolition of unsafe buildings and relocation of displaced persons (Special)

54790 Amends §§ 1, 2, 4, 6, 7, Ord. 53609, beautification commissions (Repealed by 56708)

54791 Amends § 372.060, 1960 Code, intoxicating liquor (Title 14)

54792 Stop intersection, Windsor Place and Spring Ave. (Not codified)

54793 Parking, Enright Ave. (Not codified)

54794 Parking, Compton Ave. (Not codified)

54795 Parking, Locust Street (Not codified)

54796 Parking, Easton Ave. (Not codified)

54797 Stop intersections, Dickson Street and Thomas Ave. at Garrison Ave. (Not codified)

54798 Stop intersection, Cottage Ave. and Spring Ave. (Not codified)

54799 Parking, Washington Boulevard (Not codified)

54800 Stop intersection, Theresa Ave. and Lucas Ave. (Not codified)

54801 Parking, Prairie Ave. (Not codified)

54802 Amends § 851.010, 1960 Code, Beaumont Street one-way street (Not codified)

54803 Parking, Jefferson Ave. (Not codified)

54804 Parking, Jefferson Ave. (Not codified)

54805 Parking, Washington Boulevard (Not codified)

54806 Repeals line 24, page 1154, line 4, page 1164, § 850.030, 1960 Code (Repealer)

54807 Stop intersection, Madison Ave. and Glasgow Ave. (Not codified)

54808 Stop intersection, Lucas Ave. and Leffingwell Ave., repeals line 17, page 1160, § 850.030, 1960 Code (Not codified)

54809 Parking, Grand Ave. (Not codified)

54810 Repeals line 6, page 1165, line 6, page 1166, § 850.040, 1960 Code (Repealer)

54811 Parking, Cass Ave. (Not codified)

54812 Prohibits commercial vehicles, Jasper Park (Not codified)

54813 Authorizes issuance of bonds (Special)

54814 Designates Richard H. Amberg Park (22.44.200)

54815 Authorizes acceptance of land (Special)

54816 Creates port commission (Repealed by 56707)

54817 Amends district map 1960, changes zoning to "F" local business district (Special)

54818 Amends district map 1960, changes zoning to "D" multiple-family dwelling district (Special)

54819 Vacates Aurora Ave. (Special)

54820 Vacates Humboldt Street (Special)

54821 Authorizes lease of wharf (Special)

54822 Vacates alley (Special)

54823 School stop, Marceau Street and Virginia Ave. (Not codified)

54824 Repeals line 18, page 1256, § 888.020, 1960 Code (Repealer)

54825 Repeals line 35, page 1156, § 850.030, 1960 Code (Repealer)

54826 Stop intersection, Dewey Ave. and Taft Ave. (Not codified)

54827 Prohibits commercial vehicles, Magnolia Ave. (Not codified)

54828 Parking, East Jamieson Ave. (Not codified)

54829 Parking, Holly Hills Ave. (Not codified)

54830 Stop intersection, Tennessee Ave. and Eiler Street (Not codified)

54831 Parking, Thirty-eighth Street (Not codified)

54832 Repeals line 33, page 1125, § 850.020, 1960 Code (Repealer)

54833 Repeals line 27, page 1191, § 854.010, 1960 Code (Repealer)

54834 Repeals line 39, page 1086, line 26, page 1099, § 850.020, 1960 Code (Repealer)

54835 Amends § 887.040, 1960 Code, parking, Meramec Street (Not codified)

54836 Designates Concordia Ave. one-way street (Not codified)

54837 Designates Ray Ave. one-way street (Not codified)

54838 Stop intersection, Adkins Ave. and Itaska Street (Not codified)

54839 Designates Burgen Ave. one-way street (Not codified)

54840 Prohibits commercial vehicles, alleys, block 5927 (Not codified)

54841 Amends § 852.010, 1960 Code, commercial vehicles, Clifton Ave. (Not codified)

54842 Amends § 887.010, 1960 Code, parking, West Florissant Ave. (Not codified)

54843 Vacates Douglas Street (Special)

54844 Vacates alley (Special)

54845 Vacates alley (Special)

54846 Amends § 902.020, 1960 Code, adds Ch. 914A, 1960 Code, "L" Jefferson Memorial District (Title 26)

54847 Authorizes lease of wharf (Special)

54848 Amends district map 1960, changes zoning to "J" industrial district (Special)

54849 Authorizes street and alley resurfacing in neighborhood rehabilitation areas (Special)

54850 Taxes for business licenses (8.02.010—8.02.070)

54851 Prohibits commercial vehicles, Minerva Ave. (Not codified)

54852 Stop intersection, Temple Place and Minerva Ave. (Not codified)

54853 School stop, Cote Brilliante Ave. (Not codified)

54854 Stop intersection, St. Louis Ave. and Hamilton Ave. (Not codified)

54855 Prohibits commercial vehicles, Shawmut Place (Not codified)

54856 Stop intersection, Rowan Ave. and Wells Ave. (Not codified)

54857 Prohibits commercial vehicles, Theodosia Ave. (Not codified)

54858 Stop intersection, Clara Ave. and Wells Ave. (Not codified)

54859 Repeals line 41, page 1156, § 850.030, 1960 Code (Repealer)

54860 Repeals line 26, page 1099, line 25, page 1116, lines 7 and 40, page 1133, line 34, page 1142, § 850.020, 1960 Code (Repealer)

54861 Repeals line 4, page 1082, § 850.020, 1960 Code (Repealer)

54862 Repeals line 2, page 1167, § 850.040, 1960 Code (Repealer)

54863 School stop, Goodfellow Boulevard and Kennerly Ave. (Not codified)

54864 Repeals Ord. 53190 (Repealer)

54865 School stop, Tower Grove Ave. and Norfolk Ave. (Not codified)

54866 Parking, Laclede Lane (Not codified)

54867 Amends § 1, Ord. 53271, parking, West Pine Boulevard (Not codified)

54868 School stop, Klemm Street and McRee Ave. (Not codified)

54869 School stop, Blaine Ave. and Klemm Street (Not codified)

54870 Parking, Thurman Ave. (Not codified)

54871 Parking, Forest Park Boulevard (Not codified)

54872 Repeals Ord. 53247 (Repealer)

54873 Parking, Tower Grove Ave. and McRee Ave. (Not codified)

54874 Parking, Forest Park Ave. (Not codified)

54875 Parking, Clayton Ave. (Not codified)

54876 Parking, Laclede Ave., repeals line 19, page 1270, § 888.030, 1960 Code (Not codified)

54877 Parking, Thirty-ninth Street, repeals line 19, page 1251i, § 887.040, 1960 Code (Not codified)

54878 Repeals line 9, page 1254, § 888.010, 1960 Code (Repealer)

54879 Repeals line 22, page 1282c, § 888.040, 1960 Code (Repealer)

54880 Repeals lines 8, 26, 27, § 887.020, 1960 Code (Repealer)

54881 Repeals line 1, page 1110, line 31, page 1139, § 850.020, 1960 Code (Repealer)

54882 Repeals line 22, page 1275, § 888.030, 1960 Code (Repealer)

54883 Amends § 887.040, 1960 Code, parking, Newstead Ave. (Not codified)

54884 Parking, Sarah Street (Not codified)

54885 Parking, Clayton Ave. (Not codified)

54886 Parking, Tower Grove Ave. (Not codified)

54887 Parking, Chouteau Ave. (Not codified)

54888 Parking, Duncan Ave. (Not codified)

54889 Parking, Kingshighway Boulevard (Not codified)

54890 Parking, Duncan Ave. (Not codified)

54891 Parking, Chouteau Ave. (Not codified)

54892 Directs issuance on bonds (Special)

54893 Amends § 832.050, 1960 Code, speed limit, Newstead Ave. (Repealed by 57831)

54894	Parking, roadway between Franklin Ave. and Easton Ave. (Not codified)
54895	Stop intersection, Oak Hill Ave. and Utah Street (Not codified)
54896	Stop intersection, Utah Street and Bent Ave. (Not codified)
54897	Parking, Lawn Ave., repeals line 5, page 1271, § 888.030, 1960 Code (Not codified)
54898	Amends § 832.050, 1960 Code, speed limit, Gustine Ave. (Repealed by 57831)
54899	Repeals line 22, page 1191, § 855.020, 1960 Code (Repealer)
54900	Parking, Miami Street (Not codified)
54901	Parking, Spring Ave. (Not codified)
54902	Stop intersection, Sublette Ave. and Marquette Ave. and Oleatha Ave. (Not codified)
54903	Stop intersection, Mafdel Ave. and Hereford Street (Not codified)
54904	Repeals line 29, page 1163, § 850.030, 1960 Code (Repealer)
54905	Amends § 887.010, 1960 Code, parking, Meramec Street (Not codified)
54906	Repeals line 5, page 1156, § 850.030, 1960 Code (Repealer)
54907	Repeals line 20, page 108 1, line 25, page 1139, § 850.020, 1960 Code (Repealer)
54908	Repeals line 14, page 1256, § 888.020, 1960 Code (Repealer)
54909	Designates Hydraulic Ave. one-way street (Not codified)
54910	Designates Hydraulic Ave. one-way street (Not codified)
54911	Fire lane, Gasconade Street and Dewey Ave. (Not codified)
54912	Parking, Fairview Ave. (Not codified)
54913	Stop intersection, Lawn Ave. and Pernod Ave. (Not codified)
54914	Stop intersection, Giles Ave. and Dunnica Ave. (Not codified)
54915	Stop intersection, Potomac Street and Gustine Ave. (Not codified)
54916	Designates Bamberger Ave. one-way street (Not codified)
54917	Repeals line 7, page 1099, § 850.020, 1960 Code (Repealer)
54918	Stop intersection, Bacon Street and North Market Street (Not codified)
54919	School stop, Glasgow Ave. and Madison Ave. (Not codified)
54920	Stop intersection, Dickson Street and Leffingwell Ave. (Not codified)
54921	Parking, Brantner Place (Not codified)
54922	Amends § 887.040, 1960 Code, parking, Magazine Street (Not codified)
54923	Sale of intoxicating liquor and nonintoxicating beer in service stations (Title 14)
54924	Amends § 12.040, 1960 Code, duties of secretary of board of public service (3.26.040)
54925	Appropriation for converting heating plants at hospitals (Special)
54926	Amends district map 1960, changes zoning to "F" local business district (Special)
54927	Amends district map 1960, changes zoning to "F" local business district (Special)
54928	Vacates Tesson Street (Special)
54929	Vacates Alabama Ave. (Special)
54930	Amends district map 1960, changes zoning to "F" local business district (Special)
54931	Application for community renewal program (Special)
54932	Defines blighted area (Special)
54933	Additional appropriation for current expenses (Special)
54934	Amends § 887.040, 1960 Code, parking, Page Boulevard (Not codified)
54935	Parking, Minerva Ave. (Not codified)
54936	Prohibits commercial vehicles, Bayard Ave. (Not codified)
54937	Repeals line 19, page 1188, § 853.010, 1960 Code (Repealer)

54938	Amends § 887.040, 1960 Code, parking, Delmar Boulevard (Not codified)
54939	Prohibits commercial vehicles, Julian Ave. (Not codified)
54940	Prohibits commercial vehicles, Neosho Street and Taft Ave. (Not codified)
54941	Vacates alley (Special)
54942	Vacates Ohio Ave. (Special)
54943	Vacates alley (Special)
54944	Convention and tourism bureau, repeals Ord. 54737 (3.64, 5.36, 8.06.514, 11.42.255—11.42.265)
54945	Adds § 2126.7, 1960 Code, unsafe buildings (Repealed by 56797)
54946	Amends district map 1960, changes zoning to "J" industrial district (Special)
54947	Amends district map 1960, changes zoning to "A" single family dwelling district (Special)
54948	Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)
54949	Amends district map 1960, changes zoning to "K" unrestricted district (Special)
54950	Amends district map 1960, changes zoning to "J" industrial district (Special)
54951	Amends district map 1960, changes zoning to "G" commercial district (Special)
54952	Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)
54953	Prohibits commercial vehicles, Ulena Ave. (Not codified)
54954	Prohibits commercial vehicles, McCullagh Place (Not codified)
54955	Various stop intersections (Not codified)
54956	Parking, various streets (Not codified)
54957	Parking, various streets (Not codified)
54958	Parking, various streets (Not codified)
54959	Various stop intersections (Not codified)
54960	Various stop intersections (Not codified)
54961	Parking, various streets (Not codified)
54962	Various stop intersections (Not codified)
54963	Parking, various streets (Not codified)
54964	Various stop intersections (Not codified)
54965	Various stop intersections (Not codified)
54966	Parking, various streets (Not codified)
54967	Various stop intersections (Not codified)
54968	Prohibits commercial vehicles, Clara Place (Not codified)
54969	Parking, Delmar Boulevard (Repealed by 55063)
54970	Construction of sidewalk on Cupples Place (Special)
54971	Improvement, Sacramento Ave. (Special)
54972	Vacates alley (Special)
54973	Vacates alley (Special)
54974	Improvement, Hill Street (Special)
54975	Names street Kaufmann Street (Special)
54976	Vacates Gypsy Street (Special)
54977	Partial improvement, Highland Ave. (Special)
54978	Sale of property (Special)
54979	Amends § 8, Ord. 52771, vacates Seventeenth Street and Walnut Street (Special)
54980	Amends § 1, Ord. 54403, vacates part alley (Special)
54981	Amends 4, Ord. 54493, vacates parts alleys (Special)
54982	Amends Ord. 52030, business licenses (8.06.090)
54983	Vacates alley (Special)
54984	Vacates alley (Special)
54985	Amends § 826.010, 1960 Code, vehicle horns (Repealed by 57831)

54986 Amends § 1, Ord. 54816, port commission (Repealed by 56707)

54987 Vacates alley (Special)

54988 Vacates alley (Special)

54989 Prohibits commercial vehicles, Burd Ave. (Not codified)

54990 Various stop intersections (Not codified)

54991 Parking, various streets (Not codified)

54992 Parking, Arlington Ave. and Ashland Ave. (Not codified)

54993 Parking, various streets (Not codified)

54994 Defines blighted areas (Special)

54995 Construction sidewalk Germania Ave. (Special)

54996 Parking, various streets (Not codified)

54997 Various stop intersections (Not codified)

54998 Various stop intersections (Not codified)

54999 City airport commission and airport commission (18.08, 18.12)

55000 Bureau of vital statistics fees (11.62.340, 11.62.350, 11.62.370)

55001 Vacates streets and alleys (Special)

55002 Vacates streets and alleys (Special)

55003 Additional appropriation for improvement, St. Louis Ave. (Special)

55004 Amends §§ 706.030, 706.050, 1960 Code, cargo insurance (Repealed by 59345)

55005 Vacates Broadway, alley (Special)

55006 Vacates Lami Street (Special)

55007 Vacates part First Street (Special)

55008 Sale of property (Special)

55009 Sale of property (Special)

55010 Sale of property (Special)

55011 Amends district map 1960, changes zoning to "F" local business district (Special)

55012 Vacates alley (Special)

55013 Supplementary appropriation for current expenses (Special)

55014 Vacates alley (Special)

55015 Authorizes contracts for steam service for public buildings (Special)

55016 Sale of steam distribution facilities to Union Electric Company (Special)

55017 Sale of property (Special)

55018 Vacates Sidney Street (Special)

55019 Designates Enright Ave. one-way street (Not codified)

55020 Parking, Chouteau Ave. (Not codified)

55021 Parking, Grand Boulevard (Not codified)

55022 Repeals line 23, page 1158, § 850.030, 1960 Code (Repealer)

55023 Repeals line 9, page 1158, § 850.030, 1960 Code (Repealer)

55024 Repeals line 7, page 1165, line 10, page 1166, lines 16 and 28, page 1167, line 1, page 1168, § 850.040, 1960 Code (Repealer)

55025 Stop intersection, Garfield Ave. and Spring Ave. (Not codified)

55026 Amends Ch. 892, 1960 Code, snow regulations (Repealed by 57831)

55027 Authorizes lease of wharf (Special)

55028 Stop intersection, Union Boulevard and Cote Brilliante Ave. (Not codified)

55029 Stop intersection, Union Boulevard and Maffitt Ave. (Not codified)

55030 Church stop, Marcus Ave. and Labadie Ave. (Not codified)

55031 Authorizes acceptance quit claim deed (Special)

55032 Information date bureau (8.44)

55033 Vacates Sixth Street (Special)

55034 Fixes prisoner board fee (16.12.030)

55035 Adds § 2851.7, 1960 Code, masonry (Repealed by 56797)

55036 Vacates Courtois Street, alley (Special)

55037 Amends §§ 306.060, 306.130, 1960 Code, taxicabs (Repealed by 58795)

55038 Amends § 3, Ord. 53590, junkyards (8.50)

55039 Various stop intersections (Not codified)

55040 Various stop intersections (Not codified)

55041 Amends §§ 59.020, 59.030, 59.040, 59.050, 59.060, 59.070, 59.080, 59.130, 59.140, 59.150, 1960 Code, city employee retirement system (Repealed by 64833)

55042 Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)

55043 Appropriation for construction of street department facility (Special)

55044 Vacates part alley (Special)

55045 Sale of property (Special)

55046 Application to U.S. government for community renewal program (Special)

55047 Appropriation for community renewal program (Special)

55048 Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)

55049 Prohibits minors playing pinball machines (15.118)

55050 Amends § 392.090, 1960 Code, rents (Repealed by 56797)

55051 Billiard and pool tables, repeals § 724.030, 1960 Code (8.26)

55052 Addition to Lambert-St.Louis Municipal Airport (18.04.030K)

55053 Amends Ord. 54608, sale of property (Special)

55054 Authorizes lease of Union Market Building (Special)

55055 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55056 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55057 Authorizes lease agreement for west wing of city hospital no. 1 (Special)

55058 Amends district map 1960, changes zoning to "H" commercial district (Special)

55059 Authorizes acceptance of grant for cobalt treatment devices (Special)

55060 Sale of intoxicating gases (Repealed by 55368).

55061 Amends §§ 388.010—388.190, 1960 Code, parking lots (8.70)

55062 Parking, various streets (Not codified)

55063 Parking, Delmar Boulevard, repeals Ord. 54969 (Not codified)

55064 Amends Ch. 510, 1960 Code, dogs (10.04)

55065 Unauthorized persons on school property (15.74.010—15.74.110)

55066 Amends Ord. 50373, cooperation agreement with land clearance for redevelopment authority (Special)

55067 Vacates alleys (Special)

55068 Authorizes lease agreement with Avis Rent A Car System, Inc. for land at Lambert-St. Louis Municipal Airport (Special)

55069 Conditional vacation, Valentine Street (Special)

55070 Vacates alleys (Special)

55071 Appropriations for current expenses (Special)

55072 Amends Ch. 149, 1960 Code, tax levies (5.26.060)

55073 Ratifies amendment to grant agreement for project no. 9-23-034-C216, contract no. FA-CE-1445 (Special)

55074 Traffic-control signals, Fourteenth Street and Lafayette Ave. (Not codified)

55075 Levies additional tax for use by Zoological Park (5.26.010—5.26.050)

55076 Amends §§ 3802.22, 3804.2 and 3804.5, 1960 Code, inspection and permit fees for refrigeration equipment (Repealed by 56797)

55077 Amends § 265.120, 1960 Code, excavation inspection fee (20.30.140)

55078 Amends § 342.010, 1960 Code, scale inspection fees (9.14.010)

55079 Amends table C, 1960 Code, periodic inspections of structures (Repealed by 56797)

55080 Amends § 388.040, 1960 Code, parking station inspection fees (8.70.090)

55081 Adds § 2118.52, 1960 Code, certified welder's card (Repealed by 56797)

55082 Amends § 147.050(2), 1960 Code, manufacturers statement (8.54.070)

55083 Amends § 122.020, 1960 Code, fiscal year date (5.14.020)

55084 Amends § 177.010, 1960 Code, city court costs (3.08.240)

55085 Amends § 146.110, 1960 Code, merchant and manufacturers license tax (Repealed by 60735)

55086 Amends § 3736.1, 1960 Code, plumbers and drainlayers permits (Repealed by 56797)

55087 Amends § 3103.12, 1960 Code, boilers and pressure vessels inspection fees (Repealed by 56797)

55088 Amends § 3102.21, 1960 Code, mechanical equipment permits and fees (Repealed by 56797)

55089 Amends § 3626.0, 1960 Code, escalator and lift permits and fees (Repealed by 56797)

55090 Amends § 3736.2, 1960 Code, plumbing inspection and fees (Repealed by 56797)

55091 Fees and permits for use of streets and sidewalks (20.46.010)

55092 Amends §§ 2118.23 and 2118.24, 1960 Code, construction, alteration and repair permit fees (Repealed by 56797)

55093 Amends §§ 2118.4 and 2118.5, 1960 Code, demolition and explosive fees (Repealed by 56797)

55094 Amends §§ 2118.62 and 2118.63, 1960 Code, temporary certificate of use and occupancy (Repealed by 56797)

55095 Amends § 2118.73, 1960 Code, special fees for demolition (Repealed by 56797)

55096 Amends § 2118.71, 1960 Code, special inspection fees (Repealed by 56797)

55097 Amends § 3405.4, 1960 Code, table 24, sign inspection fees (Repealed by 56797)

55098 Amends § 3507.0, 1960 Code, electrical contractor certificate and license (Repealed by 56797)

55099 Amends §§ 402.150 and 402.160, 1960 Code, rooming house permit fees (Repealed by 56797)

55100 Amends § 2, Ord. 50163, burning device fees (Ch. 11.34)

55101 Amends §§ 647.120, 647.130, 1960 Code, fuel peddler fees (8.86.090, 8.86.100)

55102 Vacates alley (Special)

55103 Amends Appendix B, 1960 Code, accepted engineering practice (Repealed by 56797)

55104 Amends § 2601.0, 1960 Code, definitions (Repealed by 56797)

55105 Amends §§ 2716.1, 2716.2, 1960 Code, towers (Repealed by 56797)

55106 Amends Appendix I, 1960 Code, fire protection standards (Repealed by 56797)

55107 Amends § 3402.5, 1960 Code, sign permit fees (Repealed by 56797)

55108 Authorizes amendment to community renewal program grant no. Mo. R-66 (CR)(G) (Special)

55109 Amends district map 1960, changes zoning to "F" local business district (Special)

55110 Various stop intersections (Special)

55111 School stops, Holly Ave. and Penrose Street, Holly Ave. and Rosalie Ave. (Not codified)

55112 Prohibits commercial vehicles, Marmaduke Ave. (Not codified)

55113 Parking, various streets (Not codified)

55114 Authorizes contracts for widening Spring Ave. (Special)

55115 Prohibits commercial vehicles, Evans Ave. (Not codified)

55116 Prohibits commercial vehicles, Sacramento Ave. (Not codified)

55117 Rental to minors (15.122)

55118 Amends §§ 2, 3, 4, Ord. 55060, possession or buying certain drugs by minors (Repealed by 55368)

55119 Amends district map 1960, changes zoning to "F" local business district (Special)

55120 Amends district map 1960, changes zoning to "G" commercial district (Special)

55121 Amends § 2, Ord. 54772, model city agency (Repealed by 55660)

55122 Construction of sidewalk on President Street (Special)

55123 Vacates various streets and alleys (Special)

55124 Improvement, Fyler Ave. (Special)

55125 Improvement, East Taylor Ave. (Special)

55126 Authorizes contracts for construction of Weil Ave. (Special)

55127 Sale of property (Special)

55128 Vacates part alley (Special)

55129 Vacates part alley (Special)

55130 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55131 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55132 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55133 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55134 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55135 Appropriation for development at Lambert-St. Louis Municipal Airport (Special)

55136 Vacates various streets and alleys (Special)

55137 Bridge owners to designate vertical distance (20.42.010)

55138 Ratifies amendment to grant agreement, project no. 9-23-034-C317, contract no. FA-CE-2067 (Special)

55139 Submits to voters question of issuance of bonds for airport improvements (Special)

55140 Amends § 3508.0, 1960 Code, electrical inspection fees (Repealed by 55797)

55141 Parking, Washington Drive Circle (17.70.080—17.70.100)

55142 Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)

55143 Amends district map 1960, changes zoning to "J" industrial district (Special)

55144 Information date bureaus (Ch. 8.44)

55145 Amends part 3, 1948 Code, changes zoning to "J" industrial district (Special)

55146 Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)

55147 Vacates alley (Special)

55148 Approves model city agency comprehensive demonstration city program (Special)

55149 Authorizes purchase of ground and U. S. Office at Lambert-St. Louis Municipal Airport (18.04.030L)

55150 Appropriation for acquisition of ground and U. S. Office at Lambert-St. Louis Municipal Airport (Special)

55151 Authorizes contracts for street lighting (Special)

55152 Amends §§ 20, 29, 29-148, Ord. 52030, §§ 3, 9, Ord. 53560, §§ 696.190, 696.270, 696.403, 697.030, 697.090, 1960 Code, tax rate increases (8.06.200, 8.06.300, 8.06.592, 8.12.030, 8.12.090)

55153 Amends district map 1960, changes zoning to "J" industrial district (Special)

55154 Authorizes lease of wharf (Special)

55155 Authorizes lease of wharf, repeals Ord. 54224 (Special)

55156 Amends district map 1960, changes zoning to "J" industrial district (Special)

55157 Authorizes amendatory application to project no. MO. M-3 (Special)

55158 Approves execution of neighborhood facilities grant contract (Special)

55159 Traffic-control signal, Grand Boulvard and Teamster Council Plaza (Special)

55160 Parking, Morgan Ford Road and Spring Ave. (Not codified)

55161 Parking, Hampton Ave., Pernod Ave., Sulphur Ave. and Sutherland Ave. (Not codified)

55162 Parking, Arsenal Street and Ivanhoe Ave. (Not codified)

55163 Sale of property, amends Ord. 54978 (Special)

55164 Traffic-control signals, Natural Bridge Ave. and Taylor Ave. (Not codified)

55165 Partial improvement, Villa Ave. (Special)

55166 Sale of property (Special)

55167 Amends district map 1960, changes zoning to "E" multiple family dwelling district (Special)

55168 Classified service and compensation plan (4.10)

55169 Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)

55170 Amends district map 1960, changes zoning to "J" industrial district (Special)

55171 Designates Human Development Corporation as community action agency (3.42)

55172 Parking, various streets (Not codified)

55173 Parking, Benton Terrace and Minerva Ave. (Not codified)

55174 Parking, various streets (Not codified)

55175 Amends § 885.060, 1960 Code, prohibits left turn from Hamilton Ave. to Westminster Place (Repealed by 57831)

55176 Amends district map 1960, changes zoning to "J" industrial district (Special)

55177 Amends §§ 335.210, 335.220, 335.230, 335.245, 335.270, 335.280, 1960 Code, firemen's retirement system (4.18)

55178 Adds § 2, Ord. 55091, permits to use streets and sidewalks (20.46.020)

55179 Authorizes amendment to community renewal program grant no. Mo. R-66(CR)(G) (Special)

55180 Parking, Blase Ave. (Not codified)

55181 Stop intersection, Church Road and Baden Ave. (Not codified)

55182 Parking, Hall Street (Not codified)

55183 Repeals line 10, page 1154, § 850.030, 1960 Code (Repealer)

55184 Parking, East Taylor Ave. (Not codified)

55185 Amends § 887.010, 1960 Code, parking, Bulwer Ave. (Not codified)

55186 Yield intersection, Clarence Ave. and Prescott Ave. (Not codified)

55187 Stop intersection, Ruskin Ave. and Thekla Ave., repeals line 30, page 1162, line 36, page 1168, § 850.030, 1960 Code (Not codified)

55188 Amends district map 1960, changes zoning to "F" local business district (Special)

55189 Authorizes agreement with U. S. government for housing program (Special)

55190 Amends § 351.040, 1960 Code, weighing fees (9.04.040)

55191 Amends §§ 593.060, 593.070, 1960 Code, railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)

55192 Amends district map 1960, changes zoning to "J" industrial district (Special)

55193 Authorizes contracts for flood control protection reaches 3 and 4 (Special)

55194 Sale of property (Special)

55195 Sale of property (Special)

55196 Sale of property (Special)

55197	Sale of property (Special)
55198	Sale of property (Special)
55199	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55200	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55201	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55202	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55203	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55204	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55205	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55206	Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)
55207	Vacates Rutger Street (Special)
55208	Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)
55209	Stop intersection, Franklin Ave. and Channing Ave. (Not codified)
55210	Sale of property (Special)
55211	Amends § 2(a), Ord. 53994, vacancy in office of president of board of aldermen (3.06.050)
55212	Directs issuance of bonds (Special)
55213	Authorizes contracts for demolition of unsafe buildings in DeSoto Carr urban renewal area (Special)
55214	Amends §§ 881.080, 881.090, adds §§ 881.080, 881.090, 881.110, 881.120, 1960 Code, dilapidated vehicles (Repealed by 57831)
55215	Amends §§ 882.010, 882.040, adds § 882.070, 1960 Code, disposal of vehicles (Repealed by 56910)
55216	Appropriation for removal of derelict automobiles (Special)
55217	Amends §§ 289.010, 289.020, 289.030, 289.050, 289.110, 1960 Code, abandoned automobiles (Repealed by 56910)
55218	Amends § 1, Ord. 54988, vacates alley (Special)
55219	Cement contractors maximum price list (Repealed by 57350)
55220	Changes Ninth Street to Checkerboard Square Plaza (Special)
55221	Amends Ord. 55036, alley vacation (Special)
55222	Vacates Vulcan Street (Special)
55223	Amends Ord. 54766, alley vacation (Special)
55224	Directs issuance of bonds (Special)
55225	Smoking in certain buildings (11.32)
55226	Vacates portion alley (Special)
55227	Amends district map 1960, changes zoning to "G" commercial district (Special)
55228	Adds § 263.140, 1960 Code, penalty for failure to repair sidewalks (20.26.180—20.26.200)
55229	Amends district map 1960, changes zoning to "J" industrial district (Special)
55230	Amends § 615.080, 1960 Code (§ 4(d), Ord. 32926), state registration number plate display (17.52.070)
55231	Vacates alley (Special)
55232	Vacates Ohio Ave. (Special)
55233	Vacates alley (Special)
55234	Sale of property (Special)
55235	Authorizes lease of wharf (Special)
55236	Amends Ord. 54751, conditional vacation, Westminster Place and alley, block 5511 (Special)
55237	Amends district map 1960, changes zoning to "H" commercial district (Special)
55238	Establishes parking area (Special)

55239	Authorizes contract with state highway commission for establishment of state highway (Special)
55240	Directs application for community renewal program (Special)
55241	Sale of property (Special)
55242	Amends § 1, Ord. 54768, vacates street (Special)
55243	Traffic-control signals, Farrar Street and Natural Bridge Ave. (Not codified)
55244	Amends § 832.030, 1960 Code, speed limit, Daniel Boone Highway (Repealed by 57831)
55245	Amends § 853.010, 1960 Code, traffic-control signals, Page Ave. and Cockrill Street (Not codified)
55246	Traffic-control signals, Etzel Ave. and Skinker Parkway (Not codified)
55247	Stop intersection, Delmar Boulevard and Walton Ave. (Not codified)
55248	Improvement, Elizabeth Ave. (Special)
55249	Vacates alley (Special)
55250	Vacates walkway (Special)
55251	Amends district map 1960, changes zoning to "F" local business district (Special)
55252	Parking, Papin Street (Not codified)
55253	Repeals Ord. 54574 (Repealer)
55254	Parking, Broadway, repeals Ord. 54396 (Not codified)
55255	Repeals line 13, page 1243, lines 8, 9 and 21, page 1244, § 887.040, 1960 Code (Repealer)
55256	Vacates alley (Special)
55257	Authorizes lease of wharf (Repealed by 55257)
55258	Vacates portion various streets and alley in West End urban renewal project (Special)
55259	Designates park area "Jordan W. Chambers Park" (22.44.210)
55260	Authorizes contracts for widening Page Boulevard (Special)
55261	Improvement, Tesson Street (Special)
55262	Vacates alley (Special)
55263	Vacates Miami Street (Special)
55264	Vacates part sidewalk on Montgomery Street (Special)
55265	Adds § 372.080, 1960 Code, delivery payments for beer or liquor (Title 14)
55266	Defines blighted area (Special)
55267	Amends § 11.090, 1960 Code (Ord. 49825), president and board of aldermen compensation (3.06.090)
55268	Approves revised urban renewal plan for West End urban renewal area (Special)
55269	Supplementary appropriation for current expenses (Special)
55270	Defines blighted area (Special)
55271	Approves development plan for blighted area (Special)
55272	Ambulances (8.14)
55273	Certificates of inspection for privately owned bridges (20.42.020—20.42.040)
55274	Amends Ord. 54235, lease contract (Special)
55275	Declares result of election for issuance of bonds (Special)
55276	Warning markings on private bridges, repeals Ord. 55137 (20.42.010)
55277	Authorizes acceptance of money for purchase of tract no. 49, Mill Creek Valley urban renewal project (Special)
55278	Amends §§ 391.020, 391.090, 391.130, 391.140, 391.230, 391.240, 392.050, 393.010, 394.020, 394.080, adds § 391.300, 1960 Code, minimum housing standards (Repealed by 56797)
55279	Repeals § 3734.29, 1960 Code (Repealer)
55280	Amends § 3731.83, 1960 Code, placarding unsanitary plumbing (Repealed by 56797)
55281	Parking, Maryland Ave., North Court and Union Boulevard (Not codified)
55282	Reappropriation for construction of municipal central service facility (Special)
55283	Sale of property (Special)

55284 Stop intersection, St. Louis Ave. and Prairie Ave. (Not codified)

55285 Sale of property (Special)

55286 Improvement, Waddell Ave. (Special)

55287 Amends § 887.040, 1960 Code, parking, Pine Boulevard (Not codified)

55288 Stop intersection, Washington Ave. and Fourth Street (Not codified)

55289 Various stop intersections (Not codified)

55290 Parking, Ninth Street and Twenty-first Street (Not codified)

55291 Repeals line 13, page 1178e, § 851.010, 1960 Code (Repealer)

55292 Repeals line 40, page 1079, line 30, page 1090, § 850.020, 1960 Code (Repealer)

55293 Repeals line 38, page 1074, § 850.020, 1960 Code (Repealer)

55294 Amends § 4, Ord. 53851, parking, Twelfth Street (Not codified)

55295 Repeals Ord. 54553 (Repealer)

55296 Designates Ninth Street one-way street (Not codified)

55297 Repeals lines 36, 37, page 1164, lines 10, 11, page 1166, § 850.040, 1960 Code (Repealer)

55298 Parking, Delmar Boulevard (Not codified)

55299 Parking, O'Fallon Street (Not codified)

55300 Parking, Hadley Street (Not codified)

55301 Stop intersection, Olive Street and Fourth Street (Not codified)

55302 Stop intersection, Nineteenth Street and Carr Street (Not codified)

55303 Prohibits commercial vehicles, Seventeenth Street (Not codified)

55304 Parking, Tenth Street (Not codified)

55305 Vacates alley (Special)

55306 Vacates Tennessee Ave. (Special)

55307 Vacates alley (Special)

55308 Vacates part Poepping Street (Special)

55309 Vacates alley (Special)

55310 Vacates Old McCausland Ave. (Special)

55311 Vacates Magnolia Ave. (Special)

55312 Grants franchise to Melhar Corporation for community antenna, television and cable system (Repealed by 58319)

55313 Vacates part Clark Ave. (Special)

55314 Amends table C, 1960 Code, building periodic inspections (Repealed by 56797)

55315 Authorizes contracts for construction at Koch Hospital (Special)

55316 Authorizes contracts for designs for health centers, health department offices (Special)

55317 Sale of certain property (Special)

55318 Establishes office of consumer affairs (3.36.680—3.36.720)

55319 Approves urban renewal plan for LaSalle- Park urban renewal area (Special)

55320 Approves urban renewal plan for DeSoto- Carr urban renewal area (Special)

55321 Approves urban renewal plan for Mill Creek North urban renewal area (Special)

55322 Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)

55323 Approves neighborhood development program for various urban renewal areas (Special)

55324 Relocation payment schedule (Special)

55325 Authorizes application for agreement with U.S. government for urban development (Special)

55326 Approves development plan for blighted area (Special)

55327 Appropriations for current expenses (Special)

55328 Approves revised comprehensive demonstration city program (Special)

55329 Authorizes sale of "The Reclining Woman" at Lambert-St. Louis Municipal Airport (Special)

55330 Vacates alley (Special)

55331	Amends §§ 593.060, 593.070, 1960 Code, railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)
55332	Appropriation for acquisition of land (Special)
55333	Establishes addition to north incinerator plant, block 2450 (Special)
55334	Amends § 177.010, 1960 Code, city court costs (3.08.240)
55335	Authorizes contracts for modification of water distribution system (Special)
55336	Amends § 885.120, 1960 Code, parking meter tags (17.62.240)
55337	Amends § 885.121, 1960 Code, parking meter tags (17.62.260)
55338	Amends § 885.190, 1960 Code, parking meter violation fines (17.62.340)
55339	Amends § 881.110, 1960 Code, parking violation fines (Repealed by 57831)
53340	Authorizes lease of wharf (Special)
55341	Authorizes application for state airport aid (Special)
55342	Vacates Guthrie Street (Special)
55343	Vacates alley (Special)
55344	Vacates alley (Special)
55345	Amends district map 1960, changes zoning to "F" local business district (Special)
55346	Vacates alley (Special)
55347	Vacates various streets in West End urban renewal project (Special)
55348	Vacates alley (Special)
55349	Vacates part alley (Special)
55350	Vacates alley (Special)
55351	Vacates part alley (Special)
55352	Vacates Accomac Street (Special)
55353	Vacates Sullivan Ave. (Special)
55354	Vacates Poepping Street (Special)
55355	Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)
55356	Approves project no. Elm 8, summer youth 69 (Special)
55357	Amends §§ 547.230, 548.040, 548.070, 548.120, 553.020, 553.030, 553.040, 553.060, 554.040, 554.050, 555.020, 555.030, 555.040, 555.050, adds § 548.170, repeals §§ 556.010, 556.020, 556.030, 556.050, 556.060, 556.070, 1960 Code, water meter rates (23.04.220, 23.06.040, 23.06.070, 23.06.130, 23.06.170, 23.18.070, 23.18.080, 23.20.010—23.20.030)
55358	Amends § 615.100, 1960 Code, possession of unlawfully procured vehicle license sticker (17.52.110, 17.52.260)
55359	Approves requisition for payment of demolition grant (Special)
55360	Approves requisition for payment of demolition grant (Special)
55361	Approves redevelopment plan for Murphy-Blair South (Special)
55362	Amends § 49.020, 1960 Code, city treasurer employee appointment and salaries (4.26.020)
55363	Amends § 51.010, 1960 Code, parking meter division employees (4.30.010)
55364	Amends § 54.010, 1960 Code, sheriff employee salaries (Ch. 4.36)
55365	Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)
55366	Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)
55367	Amends district map 1960, changes zoning to "E" multiple family dwelling district (Special)
55368	Buying and possession of drugs by minors, repeals Ord. 55060 and 55118 (11.60.070—11.60.090)
55369	Classified service and compensation plan (Ch. 4.10)
55370	Amends § 390.080, 1960 Code (§ 1, Ord. 50637), occupancy and rent collection for units in violation of minimum housing standards (Repealed by 56797)
55371	Vacates part Pope Ave. (Special)

55372 Amends § 885.060, repeals § 885.220, 1960 Code, parking meters (Repealed by 57535)

55373 Vacates part alley (Special)

55374 Adds § 390.090, 1960 Code, minimum housing standard violations and penalties (Repealed by 56797)

55375 Adds § 171.160, 1960 Code, continuances of violations of minimum housing standards (3.08.140)

55376 Vacates Clarence Ave. (Special)

55377 Vacates part Second Street (Special)

55378 Adds § 584.101, 1960 Code, telephone booths (Repealed by 58742)

55379 Vacates part alley (Special)

55380 Vacates alley (Special)

55381 Prohibits certain methods of encouraging people to sell homes in zoning districts "A," "B," "C," "D" (15.18.200—15.18.240)

55382 Prohibits real estate signs in certain zoning districts (15.18.155—15.18.195)

55383 Amends district map 1960, changes zoning to "E" multiple family dwelling district (Special)

55384 Amends § 1(4), Ord. 41726, reduction of payments under cooperation agreement (Special)

55385 Amends § 1(3), Ord. 45182, reduction of payments under cooperation agreement (Special)

55386 Requires names and addresses of all contractors and subcontractors with estimated contract for building permit (25.08)

55387 Amends §§ 2, 4, Ord. 55152, §§ 697.030, 697.040, 697.050, 697.090, 1960 Code (§§ 3, 4, 5, 9, Ord. 53560), license tax of contractors (8.12.030, 8.12.040, 8.12.050, 8.12.090)

55388 Amends §§ 696.190, 696.270, 1960 Code (§§ 20, 29, Ord. 52030), tax rates (8.06.200, 8.06.210, 8.06.220, 8.06.300)

55389 Amends § 146.110, 1960 Code, merchant and manufacturer license tax (Repealed by 60735)

55390 Amusement taxes, repeals §§ 29-8, 29-81, 29-154, 29-193, 29-196, Ord. 52030 (8.08.010—8.08.100)

55391 Amends §§ 153.020, 153.040, 1960 Code, telegraph and telephone gross receipt reports (23.32.020, 23.32.040)

55392 Amends § 152.020, 1960 Code, electrical company gross receipt reports (23.30.020)

55393 Amends § 154.030, 1960 Code, telephone company reports (23.34.030)

55394 Amends §§ 155.020, 155.050, 1960 Code, gas company gross receipt reports (23.36.020, 23.36.050)

55395 Amends § 145.060, 1960 Code, withholding tax (5.22.060)

55396 Amends § 696.274, 1960 Code, gross receipt tax for advertising business, repeals § 29-4, Ord. 52030 (Repealed by 60735)

55397 Motor carrier tax (Repealed by 56160)

55398 Vacates part alley (Special)

55399 Appropriation for development of Jefferson National Memorial (Special)

55400 Vacates part Clark Ave. (Special)

55401 Improvement of sidewalks in Gimblin Road (Special)

55402 Authorizes contract for establishment of cooperative telemetry equipment air quality network (Special)

55403 Designates Forest Park golf course "Dwight D. Eisenhower Municipal Golf Course" (22.44.220)

55404 Vacates Allen Mall (Special)

55405 Authorizes agreement with U.S. government for completion of improvements to water system (Special)

55406 Authorizes amendment to community renewal program grant no. MO. R-66 (CR)(G) (Special)

55407 Amends § 372.070, 1960 Code, Sunday sale of 3.2% beer (Title 14)

55408 Adds § 615.220, 1960 Code, city motor vehicle license violation (17.52.220—17.52.250)

55409 Authorizes agreement with U.S. government for beautification and improvements (Special)

55410 Vacates alley (Special)

55411 Vacates alley (Special)

55412 Appropriation for improvements at parks (Special)

55413 Stop intersection, Natural Bridge Ave. and Belt Ave. (Not codified)

55414 Stop intersection, Fyler Ave. and Regal Place (Not codified)

55415 Sale of property (Special)

55416 Appropriation for relief of Walter L. Paulus (Special)

55417 Authorizes grant of perpetual easement to state (Special)

55418 Vacates part Convent Street (Special)

55419 Amends § 391.040, repeals § 391.050, 1960 Code, bathroom facilities for dwelling units (Repealed by 56797)

55420 Amends § 145.100, 1960 Code, unpaid earnings taxes (5.22.110)

55421 Authorizes contracts for acquisition of land and construction of Walnut Park Branch Library (Special)

55422 Parking, various areas, repeals Ords. 52109 and 52852 (17.58)

55423 Adds § 51.020, 1960 Code, meter maids (4.30.020—4.30.040, 17.62.250)

55424 Appropriation for demolition of unsafe buildings (Special)

55425 Accepts quit claim deed (Special)

55426 Amends district map 1960, changes zoning to "F" local business district (Special)

55427 Approves project no. H 34 (Special)

55428 Approves project no. H 33 (Special)

55429 Approves project no. H 31 (Special)

55430 Approves project no. AR 2 (Special)

55431 Approves project no. AR 1 (Special)

55432 Approves project no. CV 8 (Special)

55433 Approves project no. CV 9 (Special)

55434 Approves project no. CV 7 (Special)

55435 Approves project no. SS 8 (Special)

55436 Approves project no. HE 11 (Special)

55437 Approves project no. HE 10 (Special)

55438 Approves project no. HE 5 (Special)

55439 Approves project no. ED 6 (Special)

55440 Approves project no. ED 9 (Special)

55441 Approves project no. ED 3 (Special)

55442 Approves project no. CR 12 (Special)

55443 Approves project no. CR 4 (Special)

55444 Approves project no. CR 11 (Special)

55445 Amends district map 1960, changes zoning to "G" commercial district (Special)

55446 Vacates alley (Special)

55447 Sale of property (Special)

55448 Sale of property (Special)

55449 Vacates alley (Special)

55450 Vacates alley (Special)

55451 Adds § 773.070, 1960 Code, penalties for prostitution (Repealed by 56893)

55452 Appropriation for improvements in Reservoir Park (Special)

55453 Vacates part Aurora Ave. (Special)

55454 Vacates alley (Special)

55455 Establishes commission on crime and law enforcement (3.66)

55456 Appropriation for commission on crime and law enforcement (Special)

55457 Repeals line 27, page 1148, line 25, page 1098, line 39, page 1143, § 850.020, 1960 Code (Repealer)

55458 School stop, Russell Boulevard and McNair Ave. (Not codified)

55459 Repeals line 1, page 1245, lines 21 and 22, page 1248, § 887.040, 1960 Code (Repealer)

55460 Repeals Ord. 52925 (Repealer)

55461 Amends § 887.040, 1960 Code, parking, Compton Ave. (Not codified)

55462 Repeals lines 15 and 16, page 1237, § 887.030, 1960 Code (Repealer)

55463 Repeals line 28, page 1079, line 19, page 1080, line 3, page 1092, line 18, page 1096, line 19, page 1112, line 44, page 1136, line 8, page 1138, § 850.020, 1960 Code (Repealer)

55464 Designates alley, block 1337 one-way (Not codified)

55465 Repeals line 18, page 1269, § 888.030, 1960 Code (Repealer)

55466 Repeals line 15, page 1187, § 853.010, 1960 Code (Repealer)

55467 Repeals line 23, page 1228, § 887.020, 1960 Code (Repealer)

55468 School stop, Lafayette Ave. and Missouri Ave. (Not codified)

55469 School stop, California Ave. and Henrietta Street (Not codified)

55470 Fire lane, Michigan Ave. (Not codified)

55471 Repeals line 17, page 1242, § 887.030, 1960 Code (Repealer)

55472 Repeals line 1, page 1254, § 888.020, 1960 Code (Repealer)

55473 Stop intersection, Chouteau Ave. and Paul Street (Not codified)

55474 Repeals lines 9 and 21, page 1277, § 888.030, 1960 Code (Repealer)

55475 Repeals line 14, page 1239, § 887.030, 1960 Code (Repealer)

55476 Establishes metered parking lot (Special)

55477 Ratifies grant agreement project no. 9-23- 034-C922, contract no. DOT-FA-69-CE- 3871 (Special)

55478 Authorizes lease of wharf, repeals Ord. 55257 (Special)

55479 Amends district map 1960, changes zoning to "F" local business district (Special)

55480 Repeals line 29, page 1127, § 850.020, 1960 Code (Repealer)

55481 Repeals line 12, page 1157, § 850.030, 1960 Code (Repealer)

55482 Repeals line 12, page 1164, § 850.030, 1960 Code (Repealer)

55483 School stop, West Florissant Ave. and Gano Ave. (Not codified)

55484 Designates Mary Ave. one-way street (Not codified)

55485 Designates Adelaide Ave. one-way street (Not codified)

55486 Traffic-control signals, Blair Ave. and East Grand Boulevard (Not codified)

55487 Parking, Holly Ave. (Repealed by 55821)

55488 Repeals line 35, page 1164, § 850.030, 1960 Code (Repealer)

55489 Amends § 888.040, 1960 Code, parking, Twentieth Street (Not codified)

55490 Yield intersection, Newhouse Ave. and Twenty-second Street (Not codified)

55491 Fire lane, Klien Street (Not codified)

55492 Parking, Sarah Street (Not codified)

55493 Parking, Forest Park Boulevard (Not codified)

55494 Parking, Vandeventer Ave. (Not codified)

55495 Repeals line 37, page 1147, line 1, page 1148, § 850.020, 1960 Code (Repealer)

55496 Repeals line 3, page 1282j-2, § 888.040, 1960 Code (Repealer)

55497 Imposes sales tax (5.24.010—5.24.040) .

55498 Submits sales tax issue in special election (Special)

55499 Amends district map 1960, changes zoning to "F" local business district (Special)

55500 Changes Thirteenth Street to DeMenil Place (Special)

55501 Direct issuance of bonds (Special)

55502 Submits to voters proposals for issuance of bonds (Special)

55503 Amends district map 1960, changes zoning to "F" local business district (Special)

55504 Amends district map 1960, changes zoning to "F" local business district (Special)

55505 School stop, West Florissant Ave. and Mimika Ave. (Not codified)

55506 Stop intersection, Goodfellow Boulevard and Emma Ave. (Not codified)

55507 Parking, West Florissant Ave. (Not codified)

55508 Amends district map 1960, changes zoning to "F" local business district (Special)

55509 Amends § 57.020, 1960 Code, coroner and morgue employee salaries (4.42.010)

55510 Additional appropriation for payment of services by Challenge of the Seventies Corporation (Special)

55511 Vacates part Von Phul Street and alley, block 2472 (Special)

55512 Vacates Brown Ave. (Special)

55513 Vacates various streets and alleys (Special)

55514 Amends district map 1960, changes zoning to "A" single family district (Special)

55515 Possession of firearms by person convicted of felony (15.130.030, 15.130.070)

55516 Carrying weapons in public (15.130.040—15.130.070)

55517 Amends § 372.300, 1960 Code, adds § 372.301, 1960 Code, age of person accepting payment for intoxicating liquor (Title 14)

55518 Amends § 372.050, 1960 Code, hours of sale for intoxicating liquor or beer (14.12.080)

55519 Amends district map 1960, changes zoning to "H" commercial district (Special)

55520 Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)

55521 Amends district map 1960, changes zoning to "F" local business district (Special)

55522 Amends Ord. 55390, amusement business license tax (8.08.010—8.08.100)

55523 Amends § 553.050, adds § 553.070, 1960 Code, water rates for swimming pools (23.16.060, 23.16.080, 23.16.090)

55524 Prohibits commercial vehicles, Blase Ave. (Not codified)

55525 Prohibits commercial vehicles, Baden Ave. (Not codified)

55526 Amends § 291.040, 1960 Code, mooring rights on wharfs (21.08.040)

55527 Adds § 3626.1, 1960 Code, workmen hoists inspections and fees (Repealed by 56797)

55528 Interference with operation of schools (15.112.020—15.112.040)

55529 Grants Missouri Historical Society a license to construct underground structure at Thomas Jefferson Memorial (Special)

55530 Authorizes funds for construction of sewers (Special)

55531 Vacates Lorentz Street (Special)

55532 Repeals line 20, page 1164, § 850.030, 1960 Code (Repealer)

55533 Designates Maiden Lane one-way street (Not codified)

55534 Designates Warren Street one-way street (Not codified)

55535 Designates Benton Street one-way street (Not codified)

55536 Designates Warren Street one-way street (Not codified)

55537 Repeals line 32, page 1227j, § 887.010, 1960 Code (Repealer)

55538 Church stop, St. Louis Ave. and Twenty-fifth Street (Not codified)

55539 School stop, Twenty-third Street and Benton Street (Not codified)

55540 Repeals line 24, page 1156, § 850.030, 1960 Code (Repealer)

55541 Repeals line 22, page 1274, § 888.030, 1960 Code (Repealer)

55542 Various school stops (Not codified)

55543 Repeals line 28, page 1145, § 850.020, 1960 Code (Repealer)

55544 Repeals lines 12 and 13, page 1135, § 850.020, 1960 Code (Repealer)

55545 Repeals line 34, page 1227n, § 887.020, 1960 Code (Repealer)

55546 Appropriation for construction of parking garage at Lambert-St. Louis Municipal Airport (Special)

55547	Improvement, Arthur Ave. (Special)
55548	Amends § 885.060(5), 1960 Code, parking, between City Hall and municipal courts building (17.62)
55549	Additional appropriation for construction of fire station 1-3 (Special)
55550	Authorizes grant of utility easement (Special)
55551	Sale of property (Special)
55552	Sale of property (Special)
55553	Defines blighted area (Special)
55554	Amends § 1, Ord. 52630, contracts for public improvements (Special)
55555	Authorizes contracts for community center and recreation building, repeals Ord. 52140 (Special)
55556	Authorizes contracts for refuse incinerator (Special)
55557	Ratifies grant agreement project no. 55582 9-23-034-7023, contract no. DOT-FA-70-CE-5587 (Special)
55558	Amends § 291.030, 1960 Code, 55584 mooring rights on wharf (21.08.030)
55559	Authorizes contracts for construction of overpass (Special)
55560	Vacates sidewalk on Fourth Street (Special)
55561	Authorizes acceptance of funds to install traffic signals at Gimblin Road and McLaran Ave. (Special)
55562	Amends §§ 917.020 and 917.040, 1960 Code, notices of proposed changes in zoning code (Title 26)
55563	Appropriation for election board (Special)
55564	Repeals various lines, § 850.020, 1960 Code (Repealer)
55565	Prohibits commercial vehicles, Madison Street (Not codified)
55566	Parking, Elliott Ave. (Not codified)
55567	Parking, West Park Ave. (Not codified)
55568	Amends § 888.030, 1960 Code, parking, West Park Ave. (Not codified)
55569	Repeals line 41, page 1167, § 850.040, 1960 Code (Repealer)
55570	Fire lane, Kingshighway Boulevard (Not codified)
55571	Designates Victoria Ave. one-way street (Not codified)
55572	Designates Wilson Ave. one-way street (Not codified)
55573	Designates Crescent Ave. one-way street (Not codified)
55574	Stop intersections, Esther Ave. and Elizabeth Ave., Gregg Ave. and Lloyd Ave. (Not codified)
55575	Parking, Botanical Ave., repeals lines 19 and 20, page 1262, § 888.030, 1960 Code (Not codified)
55576	Repeals line 3, page 1164, § 850.030, 1960 Code (Repealer)
55577	Stop intersection, Thekla Ave. and Wren Ave. (Not codified)
55578	Traffic-control signals, Halls Ferry Road and Broadway (Not codified)
55579	Traffic-control signals, Halls Ferry Road, Veronica and Annetta Street (Not codified)
55580	Traffic-control signals, Halls Ferry Road and McLaran Ave. (Not codified)
55581	Authorizes issuance of bonds (Special)
55582	Authorizes contracts for improvement of water works system (Special)
55583	Vacates Lisette Ave. (Special)
55584	Vacates part alley (Special)
55585	School stop, Kingshighway Boulevard and Rhodes Ave. (Not codified)
55586	Stop intersection, Murdoch Ave. and Brannon Ave. (Not codified)
55587	Prohibits commercial vehicles, Delor Street (Not codified)
55588	Repeals line 28, page 1081, § 850.020, 1960 Code (Repealer)
55589	Designates Cologne Ave. one-way street (Not codified)
55590	Repeals line 20, page 1219, § 887.010, 1960 Code (Repealer)
55591	Repeals line 16, page 1159, § 850.030, 1960 Code, school stop, line 7, page 1167, § 850.040, 1960 Code (Repealer)

55592	Church stop, St. Louis Ave. and Glasgow Ave. (Not codified)
55593	Stop intersection, Aldine Ave. and Warne Ave., repeals line 39, page 1147, § 850.020, 1960 Code (Not codified)
55594	Parking, Lambdin Ave. (Not codified)
55595	Prohibits commercial vehicles, alley, block 4467 (Not codified)
55596	Approves development plan (Special)
55597	Vacates alley (Special)
55598	Amends § 5, Ord. 54697, holding vehicle removed from Hodiamont right-of-way (Repealed by 57831)
55599	Creates division of community services and centralized housing relocation (Repealed by 56823)
55600	Authorizes contracts for construction of ancillary service building at City Hospital No. 1 (Special)
55601	Port commission, establishes office of harbor master (Repealed by 56707)
55602	Vacates part Grattan Street (Special)
55603	Authorizes acceptance of funds for installation of traffic control signals at Brown Ave. and Union Boulevard (Special)
55604	Vacates part Hampton Ave. (Special)
55605	Amends § 2, Ord. 55381, peaceful possession of homes (15.18.215—15.18.230)
55606	Amends § 2, Ord. 55382, real estate signs (15.18.170—15.18.185)
55607	Parking, North Market Street and St. Ferdinand Ave. (Not codified)
55608	Prohibits parking commercial vehicles, Easton Ave. (Not codified)
55609	Repeals line 15, page 1178, § 851.010, 1960 Code (Repealer)
55610	School stops, Newstead Ave. and Labadie Ave., Cote Brilliante Ave. and Prairie Ave. (Not codified)
55611	Church stop, St. Louis Ave. and Warne Ave. (Not codified)
55612	Repeals Ord. 54408 (Repealer)
55613	Amends § 832.050, 1960 Code, speed limit, Hodiamont Ave. (Repealed by 57831)
55614	Parking, Macklind Ave. and Northrup Ave. (Not codified)
55615	Prohibits commercial vehicles, Lindenwood Ave. (Not codified)
55616	School stop, Macklind Ave. and Lansdowne Ave. (Not codified)
55617	Authorizes amendment to agreement for code enforcement program no. MO. E-4 (Special)
55618	Additional appropriation for election board (Special)
55619	Appropriation for current expenses for water division (Special)
55620	Amends § 903.100, 1960 Code, beautifying building exteriors (Title 26)
55621	Obscene materials (15.32)
55622	Repeals Chs. 710, 711, 712, 713, 1960 Code (Repealer)
55623	Amends § 3, Ord. 55386, names and addresses of contractors and subcontractors for building permits (25.08)
55624	Authorizes contracts for street lighting (Special)
55625	Authorizes contracts for stabilization of north bank of River des Peres drainage works (Special)
55626	Amends § 2424.2, 1960 Code, parking lots (Repealed by 56797)
55627	Vacates alley (Special)
55628	Appropriation for grant agreement project no. 9-23-034-7023, contract no. DOT-FA-70-CE-5587 (Special)
55629	Appropriation for Lambert-St. Louis Municipal Airport (Special)
55630	Parking, Schiller Ave. (Not codified)
55631	Parking, Allen Market Lane (Not codified)
55632	Amends § 850.010, 1960 Code, Hodiamont Ave. major street (Not codified)
55633	Vacates Fifteenth Street, alley, block 449 (Special)

55634 Vacates street and alley network (Special)

55635 Authorizes contracts for construction of sewerage system at Koch Hospital (Special)

55636 Amends Appendix B, 1960 Code, accepted engineering practice (Repealed by 56797)

55637 Improvement, Reber Place (Special)

55638 Lead poisoning (Repealed by 56091)

55639 Appropriation for current expenses (Special)

55640 Declares result of election for issuance of bonds (Special)

55641 Vacates Second Street, alley, block 720 (Special)

55642 Vacates part alley (Special)

55643 Vacates alley (Special)

55644 Authorizes contract for electrical service to water works pumping stations (Special)

55645 Appropriation for acquisition of land for Lambert-St. Louis Municipal Airport (Special)

55646 Addition to Lambert-St. Louis Municipal Airport (18.04.030M)

55647 Authorizes issuance of bonds (Special)

55648 Amends § 145.060, 1960 Code, quarterly returns for withholding tax (5.22.060)

55649 Vacates alley (Special)

55650 Directs issuance of bonds (Special)

55651 Authorizes secretary for president of board of aldermen (3.06.220, 3.06.230, 4.22.010)

55652 Amends § 10.060, 1960 Code, mayor's contingent fund (5.42)

55653 Amends § 121.130, 1960 Code, comptroller's contingent fund (5.04.120)

55654 Declares Hall Street Industrial Highway limited access street (17.64)

55655 Authorizes contracts for construction juvenile court and detention home (Special)

55656 Submits proposed amendment to charter to voters (Charter Art. XVIII)

55657 Approves project summer youth (1970) (Special)

55658 Amends §§ 539.060, 593.070, 1960 Code, railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)

55659 Submits proposed amendment to charter to voters (Failed)

55660 Comprehensive city demonstration program, repeals Ords. 54772 and 55121 (3.46)

55661 Operation breakthrough sites (Special)

55662 Amends §§ 245.010—245.070, 1960 Code, weeds (11.04)

55663 Amends § 391.300, 1960 Code, decorative features on residential buildings (Repealed by 56797)

55664 Amends § 2315.33, 1960 Code, barbed wire (Repealed by 56797)

55665 Authorizes agreement with U. S. government for demolishing structures and relocation of displaced persons (Special)

55666 Vacates walkway, block 4907B (Special)

55667 Approves project no. ED 1 (Special)

55668 Amends district map 1960, changes zoning to "E" multiple family district (Special)

55669 Authorizes contracts for city lighting (Special)

55670 Amends § 54.010, 1960 Code, sheriff office employee salaries (4.36)

55671 Amends district map 1960, changes zoning to "F" local business district (Special)

55672 Authorizes lease agreement for facilities at Lambert-St. Louis Municipal Airport (Special)

55673 Authorizes agreement with U. S. government for program of interim assistance (Special)

55674 Amends § 51.020, 1960 Code, parking meter employees (4.30.010)

55675 Amends § 51.010, 1960 Code, parking meter division employees (4.30.010)

55676 Amends § 49.020, 1960 Code, city treasurer employees salaries (4.26.020)

55677 Vacates alley (Special)

55678 Adds § 439.100, 1960 Code, tuition loan and reimbursement program for school of nursing (12.52.200—12.52.270)

55679 Permit for transportation of certain substances (11.14)

55680 Vacates St. Alphonsus Street (Special)

55681 Amends § 2126.1, 1960 Code, demolition and repair of unsafe buildings (Repealed by 56797)

55682 Amends § 2126.7, 1960 Code, penalties (Repealed by 56797)

55683 Appropriation for building commissioner (Special)

55684 Appropriation for building commissioner (Special)

55685 Appropriation for matching funds for demolition of unsafe buildings (Special)

55686 Approves project no. HE-1 (Special)

55687 Approves project no. HE-15 (Special)

55688 Approves project no. ED-14 (Special)

55689 Approves project no. ED-15 (Special)

55690 Approves project no. ED-16 (Special)

55691 Approves project no. ED-19 (Special)

55692 Approves project no. ED-19(HDC) (Special)

55693 Approves project no. EM-1 (Special)

55694 Approves project no. SS-16 (Special)

55695 Approves project no. SS-19 (Special)

55696 Approves project no. SS-21 (Special)

55697 Approves project no. SS-22 (Special)

55698 Adds § 465.010(15), 1960 Code (§ 4, Ord. 47605), milk labeling (Repealed by 55834)

55699 Submits to voters tax increase (Special)

55700 Amends § 2403.21, 1960 Code, location of above ground flammable liquid storage tanks (Repealed by 56797)

55701 Vacates part Kingshighway Boulevard (Special)

55702 Vacates alleys (Special)

55703 Vacates alley (Special)

55704 Vacates alleys (Special)

55705 Vacates alley (Special)

55706 Sale of property (Special)

55707 Appropriation for insurance program for employees (Special)

55708 Amends § 172.020, 1960 Code, eligibility for city court judge (3.08.080)

55709 Vacates part West Pine Boulevard (Special)

55710 Adds § 555.035, 1960 Code, water rate for zoological parks (Repealed by 56130)

55711 Authorizes contracts for construction of slope protection on Botanical Ave. (Special)

55712 Authorizes contract with state highway commission for relocation of part of Route TT (Special)

55713 Amends district map 1960, changes zoning to "G" commercial district (Special)

55714 Authorizes contract with state highway commission for topics program (Special)

55715 Amends § 2116.2(14), 1960 Code (Ord. 54288), sewer lateral (Repealed by 56797)

55716 Submits proposed amendment to charter to voters (Special)

55717 Authorizes lease of wharf (Special)

55718 Authorizes contracts for remodeling room 210 of city hall (Special)

55719 Parking, East Taylor Ave. (Not codified)

55720 Parking, Broadway (Not codified)

55721 Prohibits commercial vehicles, Baden Ave. (Not codified)

55722 Prohibits commercial vehicles, Switzer Ave. (Not codified)

55723 Stop intersection, Edna Street and Canaan Ave. (Not codified)

55724 Parking, Broadway (Not codified)

55725 Parking, East Taylor Ave. (Not codified)

55726 Designates Blase Ave. one-way street (Not codified)

55727 Designates Hornsby Ave. one-way street (Not codified)

55728 Improvement, Berthold Ave. (Repealed by 56088)

55729 Authorizes release of easement (Special)

55730 Amends § 2, Ord. 55716, proposed charter amendment (Failed)

55731 Submits proposed charter amendments to voters (Failed)

55732 Submits proposed charter amendments to voters (Failed)

55733 Sale of property (Special)

55734 Sale of property (Special)

55735 Sale of property (Special)

55736 Sale of property (Special)

55737 Radio equipment for dog catcher trucks (Special)

55738 Amends § 49.020, 1960 Code, treasurer employee salaries (4.26.020)

55739 Amends § 51.020, 1960 Code, parking meter employees (4.30.020, 17.62.250)

55740 Amends § 51.010, 1960 Code, parking meter division employees (4.30.010)

55741 Sale of property (Special)

55742 Authorizes contracts for water main (Special)

55743 Sale of property (Special)

55744 Sale of property (Special)

55745 Appropriation for community renewal program (Special)

55746 Approves project no. H-35 (Special)

55747 Changes Lambert-St. Louis Municipal Airport to St. Louis International Airport (Repealed by 56014)

55748 Designates Wall Street one-way street (Not codified)

55749 Designates Lowell Street one-way street (Not codified)

55750 Parking, East Taylor Ave. (Not codified)

55751 Repeals line 16, page 1215, § 887.010, 1960 Code (Repealer)

55752 Repeals line 10, page 1160, § 850.030, 1960 Code (Repealer)

55753 Designates Windham Ave. one-way street (Not codified)

55754 Parking, East Taylor Ave. (Not codified)

55755 Designates Veronica Ave. one-way street (Not codified)

55756 Designates Baden Ave. one-way street (Not codified)

55757 Repeals line 41, page 1166, § 850.040, 1960 Code (Repealer)

55758 Stop intersection, Gimblin Street and Church Road (Not codified)

55759 Parking, Broadway (Not codified)

55760 Stop intersection, Veronica Ave. and Park Lane (Not codified)

55761 School stop, Goodfellow Boulevard and Switzer Ave. (Not codified)

55762 Parking, Newstead Ave. and Vandeventer Ave. (Not codified)

55763 Stop intersection, Maffitt Ave. and Warne Ave. (Not codified)

55764 Parking, Easton Ave. (Not codified)

55765 Parking, Lambdin Ave. (Not codified)

55766 Stop intersection, Lincoln Ave. and Prairie Ave. (Not codified)

55767 Stop intersection, Lee Ave. and Clay Ave. (Not codified)

55768 Stop intersection, Obear Street and Emily Street (Not codified)

55769 Stop intersection, Twenty-first Street and Penrose Street (Not codified)

55770 Classified service and compensation plan (Ch. 4.10)

55771 Vacancies on agency, board, commission, with 3 or more members (3.04.060—3.04.080)

55772 Stop intersection, Conde Street and College Ave. (Not codified)

55773	Various stop intersections (Not codified)
55774	Designates Farragut Street one-way street (Not codified)
55775	Submits to voters proposal of issuance of bonds (Special)
55776	Amends § 57.020, 1960 Code, coroner and morgue employee salaries (4.42.010)
55777	Declares January 15 a holiday (1.32.010)
55778	Parking, Prescott Ave. and Muriel Street (Not codified)
55779	Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)
55780	Vacates part Withers Ave. (Special)
55781	Authorizes contracts for construction of facilities at Homer G. Phillips Hospital (Special)
55782	Amends Ord. 54702, construction at hospitals (Special)
55783	Amends 1960 Code, Ch. 681, junk merchants (8.82.140, 8.82.180, 8.82.190, 8.82.220)
55784	Adds §§ 700.031, 700.061, 700.130, 700.140, 700.150, repeals § 700.030, 700.060, 1960 Code, pawnbrokers (8.72.030, 8.72.060, 8.72.080, 8.72.140, 8.72.150)
55785	Amends § 4, Ord. 54719, vendor and peddler hours (Repealed by 64569)
55786	Adds Ch. 782, 1960 Code, stolen property (15.66)
55787	Sale of land at Old Chronic Hospital (Special)
55788	Authorizes agreement with U. S. government for urban beautification and improvement (Special)
55789	Vacates alley (Special)
55790	Adds §§ 680.011, 680.012, 680.013, 680.021, 680.031, 680.032, repeals § 680.020, 1960 Code, secondhand dealers (8.82.020, 8.82.030, 8.82.040, 8.82.050, 8.82.060)
55791	Amends § 696.367, 1960 Code, hotel or motel gross receipt reports (8.06.512)
55792	Amends § 157.050, 1960 Code, garage gross receipt reports (8.76.060)
55793	Amends § 472.030(b)(c), 1960 Code, restaurant gross receipt reports (11.42.260, 11.42.265)
55794	Submits proposed amendment to charter to voters (Charter Art. I)
55795	Amends district map 1960, changes zoning to "F" local business district (Special)
55796	Amends district map 1960, changes zoning to "J" industrial district (Special)
55797	Amends district map 1960, changes zoning to "J" industrial district (Special)
55798	Amends §§ 411.010, 411.030, 1960 Code, disaster planning and operations office, civil defense (Repealed by 56848)
55799	Vacates Greer Ave. (Special)
55800	Vacates Elmbank Ave. (Special)
55801	Vacates Hodiamont Ave. (Special)
55802	Authorizes contracts for construction of Sulphur Ave. Bridge (Special)
55803	Adds § 915.060, 1960 Code, planned residential develoment (26.80)
55804	Ratifies amendment to grant agreement project no. 9-23-034-7023, contract no. DOT-FA-70-CE-5587 (Special)
55805	Ratifies amendment to grant agreement project no. 9-23-034-C922, contract no. DOT-FA-69-CE-3871 (Special)
55806	Ratifies amendment to grant agreement project no. 9-23-034-C519, contract no. FA-65-CE-3141 (Special)
55807	Ratifies amendment to grant agreement project no. 9-23-034-C317, contract no. FA-CE-2067 (Special)
55808	Amends appendix B, 1960 Code, accepted engineering practice (Repealed by 56797)
55809	Adds § 2852.3, 1960 Code, load bearing concrete masonry (Repealed by 56797)
55810	Amends § 2407, 1960 Code, liquefied petroleum gases (Repealed by 56797)
55811	Vacates alleys (Special)

55812	Amends § 281.030, 1960 Code, refuse collections (11.02 Part II)
55813	Repeals line 27, page 1089, line 30, page 1116, line 7, page 1150, § 850.020, 1960 Code (Repealer)
55814	Repeals line 4, page 1251g, § 887.040, 1960 Code (Repealer)
55815	Repeals line 27, page 1156, line 35, page 1154, line 9, page 1163, line 40, page 1159, line 36, page 1154, § 850.030, 1960 Code (Repealer)
55816	Stop intersection, Carter Ave. and Grove Ave. (Not codified)
55817	Repeals line 41, page 1155, § 850.030, 1960 Code (Repealer)
55818	Stop intersection, North Florissant Ave. and Ferry Street (Not codified)
55819	Repeals line 27, page 1161, § 850.030, 1960 Code (Repealer)
55820	Prohibits commercial vehicles, College Ave. (Not codified)
55821	Repeals Ord. 55487 (Repealer)
55822	Designates Strodtman Place one-way street (Not codified)
55823	Designates Alice Ave. one-way street (Not codified)
55824	Amends district map 1960, changes zoning to "J" industrial district (Special)
55825	Parking, Wharf Street (Not codified)
55826	Prohibits commercial vehicles, Poplar Street (Not codified)
55827	Prohibits commercial vehicles, Washington Ave. (Not codified)
55828	Prohibits commercial vehicles, Wharf Street (Not codified)
55829	Parking, Wharf Street (Not codified)
55830	Parking, Wharf Street (Not codified)
55831	Amends § 54.010, 1960 Code, sheriff employee salaries (4.36)
55832	Amends district map 19.60, changes zoning to "J" industrial district (Special)
55833	Construction of parking facilities (Special)
55834	Amends Chs. 460—467, adds Chs. 468, 469, 1960 Code, milk and milk products (11.46)
55835	Authorizes contract for relocation assistance service (Special)
55836	Amends §§ 76.400, 76.410, 76.420, adds § 76.430, 1960 Code, elections (2.08.390—2.08.420)
55837	Authorizes contracts for review of building code (Special)
55838	Approves project HE-3 (Special)
55839	Approves project SS-2 (Special)
55840	Approves project SS-3 (Special)
55841	Approves project HE-6 (Special)
55842	Approves project H-36 (Special)
55843	Sale of property (Special)
55844	Appropriation for current expenses (Special)
55845	Amends § 425.030, 1960 Code, late birth registration fees (11.62.360)
55846	Authorizes call for redemption of parking facility bonds (Special)
55847	Authorizes acceptance of funds for installation of traffic control signals at Chippewa Street and Ridgewood Ave. (Special)
55848	Approves project SS-4 (Special)
55849	Amends § 906.040, 1960 Code, parking spaces in "C" multiple family dwelling district (26.32.030)
55850	Authorizes agreement for encroachment on easement (Special)
55851	Authorizes lease of land for park (Special)
55852	Authorizes sale of part of Old Chronic Hospital grounds (Special)
55853	Sale of property (Special)
55854	Amends § 3, Ord. 54944, establishes convention and tourism bureau (5.36)
55855	Approves project EM-1 (Special)
55856	Approves project CR-3 (Special)
55857	Approves project HEW-14 (Special)
55858	Approves project CR-4 (Special)
55859	Approves project EM-4 (Special)

55860	Approves project HEW-7 (Special)
55861	Approves project HEW-15 (Special)
55862	Approves project HEW-6 (Special)
55863	Approves project HEW-8 (Special)
55864	Approves project HEW-12 (Special)
55865	Approves project HEW-9 (Special)
55866	Approves project HEW-13 (Special)
55867	Approves project HEW-4 (Special)
55868	Approves project HEW-2 (Special)
55869	Approves project CR-2 (Special)
55870	Approves project CR-5 (Special)
55871	Approves project H-1 (Special)
55872	Approves project H-2 (Special)
55873	Approves project HEW-1 (Special)
55874	Approves project CR-6 (Special)
55875	Approves project HEW-5 (Special)
55876	Adds § 756.060, 1960 Code, requires parents to report to juvenile officers after notification (15.120)
55877	Hauling garbage, repeals Chs. 282 and 288, 1960 Code (11.02.280, 11.02.285, 11.02.290)
55878	Amends Ord. 44619, easement description (Special)
55879	Approves project AR-4 (Special)
55880	Approves project AR-3 (Special)
55881	Authorizes acceptance of funds for installation of traffic control signals at Kingshighway Boulevard and Parkview Place (Special)
55882	Approves project EM-3 (Special)
55883	Readjustment easements in block 987 (Special)
55884	Appropriation for rehabilitation of physical therapy room (Special)
55885	Addition to St. Louis International Airport (18.04.030N)
55886	Appropriation for acquisition of land for St. Louis International Airport (Special)
55887	Addition to St. Louis International Airport (18.04.030O)
55888	Appropriation for acquisition of land for St. Louis International Airport (Special)
55889	Authorizes contracts for improvements at juvenile court and detention home (Special)
55890	Vacates alley (Special)
55891	Right and left turns (Not codified)
55892	Approves project AR-2 (Special)
55893	Amends district map 1960, changes zoning to "B" two family district (Special)
55894	Amends district map 1960, changes zoning to "B" two family district (Special)
55895	Amends lease (Special)
55896	Amends use agreement AL-58 (Special)
55897	Vacates Dover Street (Special)
55898	Vacates Aurora Ave. (Special)
55899	Amends § 30.010, 1960 Code, planetarium commission (3.74.010)
55900	Vacates part Pine Street (Special)
55901	Defines blighted area (Special)
55902	Vandalism (15.78.010—15.78.060)
55903	Changes Walton Ave. to Walton Row (Special)
55904	Appropriation for current expenses (Special)
55905	Amends district map 1960, changes zoning to "A" single family district (Special)
55906	Amends district map 1960, changes zoning to "F" local business district (Special)
55907	Fire lane, Prescott Ave. (Not codified)
55908	Parking, Morgan Ford Road (Not codified)
55909	Prohibits commercial vehicles, Gannett Street (Not codified)
55910	Parking, Brannon Ave. (Not codified)
55911	Parking, Brannon Ave. (Not codified)
55912	Parking, Gravois Ave. (Not codified)
55913	Prohibits commercial vehicles, Itaska Street (Not codified)

55914	Stop intersection, Neosho Street and Alfred Ave. (Not codified)
55915	Designates Goener Ave. one-way street (Not codified)
55916	Designates Dresden Ave. one-way street (Not codified)
55917	Stop intersection, Federer Street and Ray Ave. (Not codified)
55918	School stop, Bancroft Ave. and Kingshigh-way Boulevard (Not codified)
55919	Stop intersection, Itaska Street and Alfred Ave. (Not codified)
55920	Parking, Brannon Ave. (Not codified)
55921	Prohibits commercial vehicles, Delor Street (Not codified)
55922	Amends district map 1960, changes zoning to "F" local business district (Special)
55923	Amends § 22, Ord. 50163, burning device fees (Ch. 11.34)
55924	Amends § 151.050, 1960 Code, cigarette occupation tax (8.12.050)
55925	Permits to use streets and sidewalks (20.46)
55926	Amends § 1, Ord. 48894, general parking regulations (Repealed by 57831)
55927	Amends § 342.010, 1960 Code, weights and measures (9.14.010)
55928	Amends § 347.040, 1960 Code, weight certificates (9.24.060)
55929	Amends § 347.080, 1960 Code, weighing vehicles (9.24.100)
55930	Amends § 2, Ord. 55314 (Table C, 1960 Code), periodic inspections (Repealed by 56797)
55931	Amends Table A, 1960 Code, type of construction (Repealed by 56797)
55932	Amends § 388.040, 1960 Code (Ord. 55061), parking station inspection fee (8.70.090)
55933	Amends §§ 402.150, 402.160, 1960 Code, rooming house permit fees (Repealed by 60828)
55934	Amends § 3102.21, 1960 Code, mechanical equipment permits (Repealed by 56797)
55935	Amends § 3103.12, 1960 Code, boiler inspection fees (Repealed by 56797)
55936	Amends § 2118.4, 1960 Code demolition fees (Repealed by 56797)
55937	Amends §§ 2118.23, 2118.24, 1960 Code, permit fees for construction, repair (Repealed by 56797)
55938	Amends § 2118.73, 1960 Code, demolition fees (Repealed by 56797)
55939	Amends § 2118.71, 1960 Code, special inspection fees (Repealed by 56797)
55940	Amends Table 24, § 3405.4, 1960 Code, sign inspection fees (Repealed by 56797)
55941	Amends § 3626.0, 1960 Code, escalators and lifts permit fees (Repealed by 56797)
55942	Amends §§ 3802.22, 3804.5, 1960 Code, refrigeration equipment permit fees (Repealed by 56797)
55943	Amends §§ 3736.41, 3736.42, 3736.43, 1960 Code, certificates (Repealed by 56797)
55944	Amends §§ 593.060, 593.070 (Ord. 55658), 1960 Code, railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)
55945	Authorizes assurances for uniform relocation assistance and real property acquisition policies act (Special)
55946	Amends § 145.060, 1960 Code, city earnings tax (5.22.060)
55947	Authorizes agreement for renovation of city jail (Special)
55948	Amends §§ 372.060, 376.010, 1960 Code, Sunday sale of intoxicating liquor (Title 14)
55949	Amends district map 1960, changes zoning to "F" local business district (Special)
55950	Approves urban renewal plan for LaSalle Park urban renewal project (Special)

55951	Authorizes cooperation agreement for redevelopment of LaSalle Park urban renewal project (Special)
55952	Defines blighted area (Special)
55953	Appropriation for improvement of water works system (Special)
55954	Vacates Haven Street (Special)
55955	Prohibits commercial vehicles, Winona Ave. (Not codified)
55956	Authorizes agreement for encroachment on easement (Special)
55957	Stop intersection, Walton Ave. and Vernon Ave. (Not codified)
55958	Parking, McMillan Ave., Page Boulevard, Pendleton Ave. (Not codified)
55959	School stop, Sarah Street and Evans Ave. (Not codified)
55960	School stop, Newstead Ave. and Finney Ave. (Not codified)
55961	Approves project EM-5 (Special)
55962	Amends § 826.070, 1960 Code, mufflers on vehicles (Repealed by 57831)
55963	Amends § 152.030, 1960 Code, electrical utility gross receipt tax (23.30.030)
55964	Amends §§ 153.010, 153.050, 153.070, 1960 Code, telephone and telegraph gross receipt tax (23.32.010, 23.32.050, 23.32.070)
55965	Amends §§ 154.020, 154.040, 1960 Code, telephone gross receipt tax (23.34.020, 23.34.040)
55966	Amends §§ 155.010, 155.020, 155.040, 1960 Code, gas gross receipt tax (23.36.010, 23.36.020, 23.36.040)
55967	Amends §§ 156.010, 156.020, 1960 Code, waterworks revenue fund gross receipt tax (23.38)
55968	Vacates part Seventeenth Street, alleys (Special)
55969	Authorizes contracts for relocation of Gratiot Street (Special)
55970	Authorizes contracts for construction of parking facility (Special)
55971	Classified service and compensation plan (4.10)
55972	Authorizes easement to metropolitan St. Louis sewer district (Special)
55973	Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)
55974	Amends district map 1960, changes zoning to "F" local business district (Special)
55975	Authorizes contracts for construction of street, park alley lighting (Special)
55976	Authorizes contracts for widening Clark Ave. (Special)
55977	Amends lease indenture (Special)
55978	Authorizes lease of wharf (Special)
55979	Vacates part alley (Special)
55980	Supplementary appropriation for current expenses (Special)
55981	Parking, Page Boulevard (Not codified)
55982	Parking, Enright Ave. (Not codified)
55983	Yield intersection, Enright Ave. cutoff and Taylor Ave. (Not codified)
55984	Parking, Page Boulevard (Not codified)
55985	Appropriation for improvement of parks (Special)
55986	Stop intersection, Potomac Street and Second Street (Not codified)
55987	Parking, Enright Ave. (Not codified)
55988	School stop, Finney Ave. and Whittier Street (Not codified)
55989	Designates Enright Ave. one-way street (Not codified)
55990	Directs issuance of bonds (Special)
55991	Sale of property (Special)
55992	Appropriation for purchase of land (Special)
55993	Amends district map 1960, changes zoning to "A" single family district (Special)
55994	Amends district map 1960, changes zoning to "A" single family district (Repealed by 56081)
55995	Authorizes money for construction of Thomas Dunn-Marquette Center (Special)
55996	Authorizes lease of wharf (Special)

55997 Appropriation for construction at Lambert-St. Louis International Airport (Special)

55998 Amends district map 1960, changes zoning to "F" local business district (Special)

55999 Parking, Art Museum Service Road parking lot (Repealed by 56165)

56000 Procedures for expenditures from unimproved streets fund (Repealed by 58894)

56001 Amends § 850.020, 1960 Code (Repealer)

56002 Vacates Prange Ave. (Special)

56003 Repeals line 19, page 1087, line 42, page 1128, § 850.020, 1960 Code (Repealer)

56004 Parking, Whittier Street (Not Codified)

56005 Stop intersection, Enright Ave. and Whittier Street (Not Codified)

56006 Vacates alley (Special)

56007 Stop intersection, Marcus Ave. and McMillan Ave. (Not codified)

56008 Repeals line 17, page 1191, § 855.020, 1960 Code (Repealer)

56009 Authorizes agreement to acquire property for model city skill center (Special)

56010 Prohibits resubmitting to voters tax rate or issuance of bonds for 1 year (5.32)

56011 Authorizes supplemental agreement for construction of interstate route 44 (Special)

56012 Authorizes application for funding under emergency employment act (Special)

56013 Authorizes contracts for planning model city skill center (Special)

56014 Changes St. Louis International Airport to Lambert-St. Louis International Airport, repeals Ord. 55747 (18.04.010)

56015 Establishes mayor's office on aging (3.36.470—3.36.500)

56016 Repeals line 19, pace 1228, § 887.020, 1960 Code (Repealer)

56017 Prohibits commercial vehicles, West Belle Place (Not codified)

56018 Repeals line 27, page 1137, § 850.020, 1960 Code (Repealer)

56019 Traffic-control signals, Cherokee Street and Jefferson Ave. (Not codified)

56020 Parking, Concourse Drive (Not codified)

56021 Designates Pavilion Drive one-way street (Not codified)

56022 Designates Audubon Ave. one-way street (Not codified)

56023 Stop intersection, York Ave. and Maryland Plaza (Not codified)

56024 Parking, grounds of Max C. Starkloff Memorial Hospital (12.04.07012.04.100)

56025 City offices performing county functions hours (3.02.020)

56026 Authorizes acceptance of funds for traffic control signals at Eighteenth Ave. and Gratiot Ave. (Special)

56027 Ward boundaries, repeals Ords. 53564, 54404 (2.12)

56028 Vacates part Koscuisko Street (Special)

56029 Vacates part Osage Street (Special)

56030 Adds § 210.030, 1960 Code, recommendations for intermittent service of time (16.24)

56031 Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)

56032 Authorizes contracts for widening Oakland Ave. (Special)

56033 Vacates Lilly Ave. (Special)

56034 Appropriation for acquisition of land for St. Louis International Airport (Special)

56035 Appropriation for acquisition of land for St. Louis International Airport (Special)

56036 Vacates Taylor Ave. (Special)

56037 Authorizes contracts for street improvements (Special)

56038 Authorizes contracts for street improvements (Special)

56039	Authorizes contracts for street improvements (Special)
56040	Authorizes contracts for street improvements (Special)
56041	Authorizes contracts for street improvements (Special)
56042	Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)
56043	Amends § 53.010, 1960 Code, recorder of deeds employee salaries (4.34)
56044	Acceptance of property (Special)
56045	Amends § 51.020, 1960 Code, parking meter maids (4.30.020)
56046	Amends § 49.020, 1960 Code, treasurer office employee salaries (4.26.020)
56047	Amends § 51.010, 1960 Code, parking meter division employee salaries (4.30.010)
56048	Amends § 3, Ord. 55962, mufflers (Repealed by 57831)
56049	Amends Ord. 46794, sale of excess water (Special)
56050	Appropriation for improvement of water works system (Special)
56051	Amends § 50.010, 1960 Code, license collector employee salaries (4.28.010)
56052	Amends § 903.100, 1960 Code, building permits (26.16.140—26.16.190)
56053	Adds § 145.130, 1960 Code, tax evasion (5.22.140)
56054	Collection of delinquent property taxes (5.08.040)
56055	Approves project PHY-6 (Special)
56056	Amends § 54.010, 1960 Code, sheriff office employee salaries (4.36)
56057	Approves planned residential development plan application no. 1 (Special)
56058	Amends § 836.020, 1960 Code, unattended motor vehicles (Repealed by 57831)
56059	Designates Parkview Place one-way street (Not codified)
56060	Authorizes acceptance of funds for traffic-control signals at Gravois Ave. and Hydraulic Ave. (Special)
56061	Stop intersection, Beacon Ave. and Harney Ave. (Not codified)
56062	Stop intersection, Belt Ave. and Maple Ave. (Not codified)
56063	Parking, Delmar Boulevard (Not codified)
56064	Repeals line 14, page 1238h, § 888.040, 1960 Code (Repealer)
56065	Repeals Ord. 53222 (Repealer)
56066	Authorizes contracts for street improvements (Special)
56067	Parking, Hospital Drive (Not codified)
56068	Authorizes contracts for construction of steel garage building (Special)
56069	Amends § 152.030, 1960 Code, electrical utilities gross receipts tax (23.30.030)
56070	Amends § 153.050, 1960 Code, telephone and telegraph gross receipts tax (23.32.050)
56071	Amends § 154.020, 1960 Code, telephone gross receipts tax (23.34.020)
56072	Repeals line 33, page 1182, § 853.010, 1960 Code (Repealer)
56073	Repeals line 18, page 1074, line 15, page 1087, § 850.020, 1960 Code (Repealer)
56074	Parking, Euclid Ave. (Not codified)
56075	Repeals line 15, page 1282h, § 888.040, 1960 Code (Repealer)
56076	Parking, Forest Park Boulevard (Not codified)
56077	Repeals line 28, page 1217, § 887.010, 1960 Code (Repealer)
56078	Vacates part Gratiot Street (Special)
56079	Vacates alley (Special)
56080	Vacates part Maple Ave., West Cabanne Terrace (Special)
56081	Amends district map 1960, changes zoning to "A" single family district (Special)
56082	Vacates part alley (Special)
56083	Vacates part alley (Special)

56084	Ratifies grant agreement project no. 8-29-0085-01, contract no. DOT-FA-71- CE-6037 (Special)
56085	Ratifies grant agreement project no. 8-29-0085-02, contract DOT-FA-72-CE-6098 (Special)
56086	Addition to Lambert-St.Louis International Airport (Special)
56087	Improvement, Berthold Ave. (Special)
56088	Repeals Ord. 55728 (Repealer)
56089	Parking, Enright Ave. (Not codified)
56090	Sale of property (Special)
56091	Lead poisoning control law, repeals Ord. 55638 (11.22)
56092	Amends Appendix A, 1960 Code, accredited authoritative agencies (Repealed by 56797)
56093	Adds §§ 3716.91, 3716.92, 1960 Code, connections for pipe (Repealed by 56797)
56094	Amends Appendix B, 1960 Code, accepted engineering practice (Repealed by 56094)
56095	Amends § 3715.0, 1960 Code, plumbing standards (Repealed by 56797)
56096	Approves project CPO-3 (Special)
56097	Permanent condemnation commission salaries (Repealed by 56590)
56098	Sale of property (Special)
56099	Sale of property (Special)
56100	Adds Ch. 914B, 1960 Code, historic district (Repealed by 57986)
56101	Amends § 832.110, 1960 Code, pedestrians, nonmotorized vehicles and animals on expressways (Repealed by 57831)
56102	Sale of property (Special)
56103	Sale of property (Special)
56104	Amends § 374.034, 1960 Code, drink liquor license (Title 14)
56105	Amends § 372.301, 1960 Code, sale of beer by minors (Title 14)
56106	Improvement, alley (Special)
56107	Repeals Ord. 53572 (Repealer)
56108	Amends § 432.020, 1960 Code, cemeteries designated for burial purposes (11.62.280)
56109	Amends district map 1960, changes zoning to "J" industrial district (Special)
56110	Authorizes contracts for planning model city skill center (Special)
56111	Left turn from Lindell Boulevard to Lake Ave. (Not codified)
56112	Vacates alleys, part Fifteenth Street, Sixteenth Street (Special)
56113	Establishes Brockschmidt Place (Special)
56114	Prohibits commercial vehicles, Eiler Street (Not codified)
56115	Designates Louisiana Ave. one-way street (Not codified)
56116	Parking, Grand Boulevard (Not codified)
56117	Parking, Thirty-ninth Street (Not codified)
56118	Vacates part Way Street, Hampton Ave., alley (Special)
56119	Authorizes grant of easement (Special)
56120	Authorizes contracts for grade separations (Special)
56121	Vacates part alley (Special)
56122	Vacates Scanian Ave. (Special)
56123	Supplementary appropriation for current expenses (Special)
56124	Adds §§ 331.100, 331.110, 331.120, 331.130, 331.140, 331.150, 331.160, 331.170, 1960 Code, establishes arson investigation detail (3.24.550—3.24.620)
56125	Approves development plan (Special)
56126	Approves development plan (Special)
56127	Approves development plan (Special)
56128	Approves development plan (Special)
56129	Restoration of Bissell Street water tower (Special)
56130	Water rate for zoological parks, repeals § 555.035, 1960 Code (23.20.040)

56131	Amends §§ 175.010, 175.020, 175.030, 175.040, 1960 Code, jurors (3.08.190—3.08.230)
56132	Amends §§ 59.010, 59.040, 59.070, 59.090, 59.110, 59.130, 59.140, 1960 Code retirement system (Repealed by 64833)
56133	Vacates part Shenandoah Ave. (Special)
56134	Authorizes contracts for replacements on tennis courts in parks (Special)
56135	Authorizes contracts for modernization of garage facilities at south side incinerator (Special)
56136	Sale of property (Special)
56137	Amends § 697.100, 1960 Code, contractor license tax (8.12.100)
56138	Amends § 917.040, 1960 Code, public hearing notice for proposed zoning code changes (26.88.040)
56139	Amends district map 1960, changes zoning to "C" multiple family residential district (Special)
56140	Straw party registration and control law (15.154)
56141	Requirements for deeds law (15.152)
56142	Adds § 2126.8, 1960 Code, unsafe buildings (Repealed by 56797)
56143	Prohibits vehicles, Hall Street (Not codified)
56144	Repair of vehicle on streets (Repealed by 57831)
56145	Supplemental appropriation for current expenses (Special)
56146	Parking, Leona Street (Not codified)
56147	Parking, Meramec Street (Not codified)
56148	Repeals line 25, page 1226, § 887.010, 1960 Code (Repealer)
56149	Parking, area bounded by Market Street, Third Street, Seventeenth Street and Franklin Ave. (Not codified)
56150	Stop intersection, Grace Ave. and Bingham Ave. (Not codified)
56151	Prohibits commercial vehicles, Giles Ave. (Not codified)
56152	Parking, Thirty-eighth Street (Not codified)
56153	Prohibits commercial vehicles, Grace Ave. (Not codified)
56154	Extends sales tax (5.24.050)
56155	Authorizes acceptance of funds for installation of traffic signals at Grand Boulevard and Hartford Street (Special)
56156	Amends § 48.010, 1960 Code, magistrate court employees salaries (4.24.010)
56157	Amends district map 1960, changes zoning to "F" local business district (Special)
56158	Establishes off-street parking lot (Special)
56159	Authorizes engagement of contractor to remove and store vehicles (17.56.280—17.56.340)
56160	Repeals Ord. 55397 (Repealer)
56161	Left turn signals, Natural Bridge and Union Boulevard (Not codified)
56162	Vacates part Fifteenth Street, Seventeenth Street, Eighteenth Street, alleys (Special)
56163	Vacates Kosciusko Street (Special)
56164	Vacates alley (Special)
56165	Parking, St. Louis Art Museum parking lot, repeals Ord. 55999 (22.16.150—22.16.180)
56166	Authorizes contract for grant to acquire land for open spaces (Special)
56167	Approval of applications for permits for residential structures that are government subsidized (25.48)
56168	Authorizes contracts for development of playgrounds (Special)
56169	Establishes Park Ave. (Special)
56170	Authorizes contracts for construction of interstate highway 55 (Special)
56171	Amends §§ 404.190, 404.200, 404.210, 404.220, adds §§ 404.300, 404.310, 404.320, 404.330, 404.340, 404.350, 404.360, 1960 Code, hotel fire wardens (Repealed by 60828)
56172	Classified service and compensation plan (4.10)

56173 Amends Ch. 890, 1960 Code, parking regulations in street cleaning districts (Repealed by 57831)

56174 Changes Franklin Ave. to Dr. Martin Luther King Drive (Special)

56175 Restricts use of Locust Street to buses and emergency vehicle (Expired)

56176 Appropriations for current expense (Special)

56177 Sale of property (Special)

56178 Amends § 1, Ord. 55390, motion picture-license tax (8.06.330, 8.06.472, 8.06.660, 8.06.666, 8.08.010—8.08.100)

56179 Motion picture business license tax (8.08.140, 8.08.150)

56180 Sheriff office employee salaries (4.36.010—4.36.060)

56181 Authorizes contracts for construction of skill center (Special)

56182 Amends district map 1960, changes zoning to "F" local business district (Special)

56183 Vacates alley (Special)

56184 Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)

56185 Traffic-control signals, Clark Ave. and Eleventh Street (Not codified)

56186 Amends district map 1960, changes zoning to "F" local business district (Special)

56187 Amends district map 1960, changes zoning to "D" multiple family district (Special)

56188 Approves planned residential development plan application no. 5 (Special)

56189 Amends district map 1960, changes zoning to "H" commercial district (Special)

56190 Approves project EM-40 (Special)

56191 Authorizes contracts for demolition of certain structures (Special)

56192 Approves project AR-40 (Special)

56193 Approves project CR-40 (Special)

56194 Approves project CR-41 (Special)

56195 Approves project CR-42 (Special)

56196 Approves project CR-43 (Special)

56197 Approves project ED-40 (Special)

56198 Approves project ED-41 (Special)

56199 Approves project ED-42 (Special)

56200 Approves project EM-42 (Special)

56201 Approves project EM-41 (Special)

56202 Approves project HE-40 (Special)

56203 Approves project HE-41 (Special)

56204 Approves project HO-40 (Special)

56205 Approves project HO-42 (Special)

56206 Approves project SS-40 (Special)

56207 Approves project SS-41 (Special)

56208 Approves project SS-43 (Special)

56209 Approves project SS-44 (Special)

56210 Approves project program administration (Special)

56211 Approves project evaluation/information system (Special)

56212 Approves project EM-43 (Special)

56213 Amends district map 1960, changes zoning to "D" multiple family district (Special)

56214 Amends district map 1960, changes zoning to "D" multiple family district (special)

56215 Approves planned residential development plan application no. 3 (Special)

56216 Parking, California Ave. (Not codified)

56217 Designates Seventh Street one-way street (Not codified)

56218 Parking commercial vehicles, Pennsylvania Ave. (Not codified)

56219 Amends § 221.080, 1960 Code, fishing in parks (22.08.050)

56220 Vacates alley (Special)

56221 Vacates VanBuren Street (Special)

56222 Vacates alley (Special)

56223 Vacates Marceau Street (Special)

56224 Vacates alley (Special)

56225 Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)

56226	Approves planned residential development plan application no. 6 (Special)
56227	Vacates Laclede Lane (Special)
56228	Approves project §-42 (Special)
56229	Approves planned residential development plan application no. 4 (Special)
56230	Amends district map 1960, changes zoning to "F" local business district (Special)
56231	Authorizes contracts for improvement, Park Ave. (Special)
56232	Amends district map 1960, changes zoning to "D" multiple family district (Special)
56233	Amends district map 1960, changes zoning to "J" industrial district (Special)
56234	Sale of property (Special)
56235	Amends district map 1960, changes zoning to "J" industrial district (Special)
56236	Authorizes grant of easement (Special)
56237	Appropriation for railroad deck for Douglas MacArthur Bridge (Special)
56238	Amends §§ 665.070, 665.080, 665.100, 1960 Code, peddling frozen desserts (Not codified)
56239	Appropriation for acquisition of land for Lambert-St. Louis International Airport (Special)
56240	Repeals line 17, page 1080, line 4, page 1087, line 5, page 1135, line 29, page 1138, § 850.020, 1960 Code (Repealer)
56241	Vacates alley (Special)
56242	Vacates Krauss Street (Special)
56243	Stop intersection, Juniata Street and Iowa Street (Not codified)
56244	Sale of property (Special)
56245	Sale of property (Special)
56246	Vacates alley (Special)
56247	Amends district map 1960, changes zoning to "D" multiple family dwelling district (Special)
56248	Amends district map 1960, designates Lafayette Square historic district (Repealed by 63327)
56249	Authorizes contracts for garbage removal at Soulard Market (Special)
56250	Changes Pershing Ave. to Pershing Place (Special)
56251	Authorizes contracts for maintaining street lighting (Special)
56252	Amends Ord. 55879, approves project AR-4 (Special)
56253	Vacates alley (Special)
56254	Authorizes contracts for street improvements (Special)
56255	Authorizes contracts for street improvements (Special)
56256	Approves project CP-40 (Special)
56257	Adds §§ 649.140, 649.150, 1960 Code, neighborhood approval for license (8.24)
56258	Designates alley, block 5805, one-way (Not codified)
56259	Lease agreement for land at Lambert-St. Louis International Airport (Special)
56260	Amends district map 1960, changes zoning to "J" industrial district (Special)
56261	Amends district map 1960, changes zoning to "F" local business district (Special)
56262	Submits to voters issuance of bond (Special)
56263	Amends §§ 3, 5(696.367(a)), 6(472.030(a)), 7, Ord. 54944, convention, exhibition and community center (5.36, 8.06.514, 11.42.255—11.42.265)
56264	Adds § 146.075, 1960 Code, merchant and manufacturer tax (8.56.120)
56265	Board of adult welfare services (3.36.350)
56266	Vacates alley (Special)
56267	Permit for selling on wharf (21.40)
56268	Authorizes contracts for street improvements (Special)

56269	Parking, Pestalozzi Street (Not codified)
56270	Parking, Sidney Street (Not codified)
56271	Stop intersection, Pennsylvania Ave. and Pestalozzi Street (Not codified)
56272	Parking, Potomac Street (Not codified)
56273	Parking, Broadway (Not codified)
56274	Repeals lines 22, 23, page 1282D, § 888.040, 1960 Code (Repealer)
56275	Parking, Arkansas Ave. (Not codified)
56276	Repeals line 11, page 1282f, § 888.040, 1960 Code (Repealer)
56277	Parking, Nebraska Ave. (Not codified)
56278	Parking, Arsenal Street (Not codified)
56279	Parking, Arsenal Street (Not codified)
56280	Repeals line 3, page 1243, § 887.040, 1960 Code (Repealer)
56281	Repeals line 3, page 1210, § 887.010, 1960 Code (Repealer)
56282	Parking, Broadway (Not codified)
56283	Parking, Arsenal Street (Not codified)
56284	Stop intersection, Hartford Street and Arkansas Ave. (Not codified)
56285	Parking, Broadway, Dorcas Street and Lynch Street (Not codified)
56286	Parking, Arsenal Street (Not codified)
56287	Repeals line 22, page 1162, line 7, page 1164, § 850.030, 1960 Code (Repealer)
56288	Repeals lines 12, 32, page 1168, § 850.040, 1960 Code (Repealer)
56289	Repeals Ord. 54345 (Repealer)
56290	Repeals Ord. 53829 (Repealer)
56291	Repeals § 1, Ord. 52837 (Repealer)
56292	Repeals line 23, page 1168, § 850.040, 1960 Code (Repealer)
56293	Parking, Pennsylvania Ave. (Not codified)
56294	Vacates Poplar Stret (Special)
56295	Authorizes contracts for demolition of unsafe structures (Special)
56296	Authorizes lease of wharf (Special)
56297	Authorizes lease of wharf (Special)
56298	Authorizes lease of wharf (Special)
56299	Authorizes lease of wharf (Special)
56300	Amends § 295.080, 1960 Code, wharf rent rates (21.20.080)
56301	Vacates alley (Special)
56302	Authorizes management survey for hospital operations and accounting surveys for accounting procedures (Special)
56303	Restricts use of Locust Street to buses and authorized vehicles (Repealed by 56646)
56304	Stop intersection, Hickory Street and Ohio Ave. (Not codified)
56305	Parking, Gratiot Street (Not codified)
56306	Parking, Twenty-second Street (Not codified)
56307	Repeals line 19, page 1229, § 887.020, 1960 Code (Repealer)
56308	Repeals line 1, page 1241, § 887.030, 1960 Code (Repealer)
56309	Parking, Austin Street (Not codified)
56310	Parking, Austin Street (Not codified)
56311	Parking, Seventeenth Street (Not codified)
56312	Repeals line 18, page 1251i, § 887.040, 1960 Code (Repealer)
56313	Parking, Singleton Street (Not codified)
56314	Parking, Papin Street (Not codified)
56315	Yield intersection, Cardinal Ave. and Rutger Street, Montrose Ave. and Rutger Street (Not codified)
56316	Repeals line 7, page 1184, line 8, page 1186, line 16, page 1189, § 853.010, 1960 Code (Repealer)
56317	Repeals line 10, page 1282j-4, § 888.040, 1960 Code (Repealer)
56318	Parking, Park Ave. (Not codified)
56319	Stop intersection, Lucas Ave. and Nineteenth Street (Not codified)
56320	Repeals line 6, page 1260, § 888.020, 1960 Code (Repealer)
56321	Stop intersection, Rutger Street and Ohio Ave. (Not codified)

56322	Repeals line 20, page 1276, § 888.030, 1960 Code (Repealer)
56323	Parking, Market Street (Not codified)
56324	Parking, Beaumont Street (Not codified)
56325	Parking, Chestnut Street (Not codified)
56326	Repeals line 20, page 1054, § 832.040, 1960 Code (Repealed by 57831)
56327	Repeals line 27, page 1227g, § 887.010, 1960 Code (Repealer)
56328	Parking, Leffingwell Ave. (Not codified)
56329	Parking, Leffingwell Ave. (Not codified)
56330	Parking, St. Louis Ave. (Not codified)
56331	Parking, Walnut Street (Not codified)
56332	Parking, Laclede Ave. (Not codified)
56333	Repeals line 2, page 1248, § 887.040, 1960 Code (Repealer)
56334	Parking, Fifteenth Street (Not codified)
56335	Parking, Market Street (Not codified)
56336	Parking, Fourteenth Street (Not codified)
56337	Parking, Scott Ave. (Not codified)
56338	Parking, Twenty-second Street (Not codified)
56339	Repeals line 18, page 1209, § 887.010, 1960 Code (Repealer)
56340	Repeals line 2, page 1234, § 887.030, 1960 Code (Repealer)
56341	Speed limit, Compton Ave. (Repealed by 57831)
56342	Stop intersection, Lucas Ave. and Fifteenth Street (Not codified)
56343	Repeals line 12, page 1282j-4, § 888.040, 1960 Code (Repealer)
56344	Parking, Jefferson Ave. (Not codified)
56345	Parking, LaSalle Street (Not codified)
56346	Repeals line 7, page 1144, § 850.020, 1960 Code (Repealer)
56347	Repeals line 20, page 1238, § 887.030, 1960 Code (Repealer)
56348	Repeals line 20, page 1093, § 850.020, 1960 Code (Repealer)
56349	Traffic-control signals, Ninth Street and Walnut Street (Not codified)
56350	Repeals line 11, page 1282j-4, § 888.040, 1960 Code (Repealer)
56351	Yield intersection, Compton cutoff and Compton Ave. (Not codified)
56352	Repeals line 2, page 1251b, § 887.040, 1960 Code (Repealer)
56353	Parking, Chouteau Ave. (Not codified)
56354	Parking, Thirteenth Street (Not codified)
56355	Parking, Market Street (Not codified)
56356	Parking, Pine Street (Not codified)
56357	Parking, Market Street (Not codified)
56358	Repeals line 5, page 1226, § 887.010, 1960 Code (Repealer)
56359	Parking, Market Street (Not codified)
56360	Parking, Clark Ave. (Not codified)
56361	Parking, Spruce Street (Not codified)
56362	Parking, Twenty-first Street (Not codified)
56363	Stop intersection, Twenty-second Street and Papin Street (Not codified)
56364	Repeals line 16, page 1227j, § 887.010, 1960 Code (Repealer)
56365	Parking, Locust Street (Not codified)
56366	Parking, Twenty-second Street (Not codified)
56367	Parking, Scott Ave. (Not codified)
56368	Stop intersection, Lucas Ave. and Seventh Street (Not codified)
56369	Stop intersection, Walnut Street and Tenth Street (Not codified)
56370	Parking, Thirteenth Street (Not codified)
56371	Repeals Ord. 52990 (Repealer)
56372	Parking, Eleventh Street (Not codified)
56373	Stop intersection, Walnut Street and Eleventh Street (Not codified)
56374	Parking, Ninth Street (Not codified)
56375	Parking, Eighth Street (Not codified)
56376	Repeals line 7, page 1268, § 888.030, 1960 Code (Repealer)

56377	Amends § 887.030, 1960 Code, parking, Lucas Ave. (Not codified)
56378	Parking, Chestnut Street (Not codified)
56379	Parking, wharf from Washington Ave. to Wharf Street (Not codified)
56380	Parking, wharf from Washington Ave. to Wharf Street (Not codified)
56381	Repeals Ord. 52990 (Repealer)
56382	Repeals line 19, page 1251f, § 887.040, 1960 Code (Repealer)
56383	Parking, Chestnut Street (Not codified)
56384	Parking, Third Street (Not codified)
56385	Amends Ord. 55155, lease of docking facilities (Special)
56386	Amends § 57.020, 1960 Code, coroner and morgue employee salaries (4.42.010)
56387	Authorizes lease of wharf (Special)
56388	Defines blighted area (Special)
56389	Appropriation for project PHY-6 (Special)
56390	Vacates alleys (Special)
56391	Submits to voters proposed charter amendments (Failed)
56392	Parking, Carr Street (Not codified)
56393	Parking, Locust Street (Not codified)
56394	Parking, Olive Street (Not codified)
56395	Designates alley, block 1059, one-way (Not codified)
56396	Stop intersection, Cardinal Ave. and Lucas Ave. (Not codified)
56397	Amends § 888.020, 1960 Code, parking, Delmar Boulevard (Not codified)
56398	Parking, Clinton Street (Not codified)
56399	Repeals line 1, page 1224, § 887.010, 1960 Code (Repealer)
56400	Stop intersection, Spruce Street and Fifteenth Street (Not codified)
56401	Repeals line 20, page 1251d, § 887.040, 1960 Code (Repealer)
56402	Parking, Market (Not codified)
56403	Parking, Poplar Street (Not codified)
56404	Parking, Delmar Boulevard (Not codified)
56405	Amends § 887.030, 1960 Code, parking, Theresa Ave. (Not codified)
56406	Parking, Carr Street (Not codified)
56407	Repeals line 15, page 1077, § 850.020, 1960 Code (Repealer)
56408	Parking, Delmar Boulevard (Not codified)
56409	Repeals line 11, page 1282J-1, § 888.040, 1960 Code (Repealer)
56410	Parking, Washington Boulevard (Not codified)
56411	Parking, Fourteenth Street (Not codified)
56412	Stop intersection, Lucas Ave. and Ninth Street (Not codified)
56413	Repeals line 16, page 1097, line 7, page 1083, § 850.020, 1960 Code (Repealer)
56414	Amends § 888.030, 1960 Code, parking, Carr Street (Not codified)
56415	Parking, Compton Ave. (Not codified)
56416	Repeals line 17, page 1251, § 887.040, 1960 Code (Repealer)
56417	School stop, Ewing Ave. and Lucas Ave. (Not codified)
56418	Parking, Cardinal Ave. (Not codified)
56419	Parking, Second Street (Not codified)
56420	Repeals Ord. 51981 (Repealer)
56421	Parking, O'Fallon Street (Not codified)
56422	Stop intersection, Harney Ave. and Partridge Ave. (Not codified)
56423	Vacates alley (Special)
56424	Vacates alleys (Special)
56425	Parking, Chestnut Street (Not codified)
56426	Authorizes lease for banking facility at Lambert-St. Louis International Airport (Special)
56427	Adds § 145.075, 1960 Code, earnings tax report (5.22.080)
56428	Amends district map 1960, changes zoning to "G" commercial district (Special)
56429	Authorizes lease of wharf (Special)
56430	Sale of property (Special)
56431	Sale of property (Special)

56432 Purchase of land (Special)

56433 Acceptance of land title (Special)

56434 Repeals Ord. 50545 (Repealer)

56435 Authorizes contracts for construction of ramps for Adelaide Overpass and Interstate Route I-70 (Special)

56436 Sale of property (Special)

56437 Amends § 7, adds §§ 5A, 7A, Ord. 56140, straw party registration and control law (15.154.060, 15.154.080, 15.154.090)

56438 Vacates alley (Special)

56439 Extends sales tax (5.24.050)

56440 Authorizes conveyance of easements for sewage pumping station (Special)

56441 Authorizes contracts for ramp construction between Interstate highway 55 and streets (Special)

56442 Declares result of election for incurring indebtedness (Special)

56443 Amends §§ 909.020, 910.020, 912.020, 913.020, 914.020, adds §§ 901.095, 901.108, 901.325, 1960 Code, zoning (Title 26)

56444 Amends §§ 335.010, 335.230, 335.510, adds § 335.295, 1960 Code, firemen's retirement (4.18.010, 4.18.165, 4.18.275)

56445 Vacates alley (Special)

56446 Adds § 263.011, 1960 Code, sidewalk repair (Repealed by 57349)

56447 Adds § 241.080, 1960 Code, tree replacement (22.48.250)

56448 Sale of property at Lambert-St. Louis International Airport (Special) (Repealed by 56448)

56449 Authorizes contracts for construction sewer pumping station (Special)

56450 Authorizes lease of wharf, repeals Ord. 54034 (Special)

56451 Vacates DeKalb Street (Special)

56452 Sale of property (Special)

56453 Appropriation for correction of sewer (Special)

56454 Authorizes contracts for construction at children's home and school for boys (Special)

56455 Amends § 821.060(3), 1960 Code, emergency and temporary regulations made by traffic commissioner (Repealed by 57831)

56456 Amends district map 1960, changes zoning to "J" industrial district (Special)

56457 Amends district map 1960, changes zoning to "J" industrial district (Special)

56458 Amends § 1, Ord. 56169, establishes Park Ave. (Special)

56459 Vacates part Compton Ave. (Special)

56460 Amends §§ 391.130, 391.140, 1960 Code, electrical service (Repealed by 56797)

56461 Appropriation for current expenses (Special)

56462 Appropriation for operating expenses for mass transit system (Special)

56463 Amends § 2126.1, adds § 2126.1-A, 1960 Code, demolition or repair of unsafe buildings (Repealed by 56797)

56464 Amends § 399.405, 1960 Code (Ord. 54274), vacant buildings for nonresidential purposes (25.32)

56465 Amends § 391.500, 1960 Code (Ord. 54273), vacant buildings (Repealed by 56797)

56466 Appropriation for study of Lambert-St. Louis International Airport (Special)

56467 Amends § 186.010, 1960 Code, public defender bureau (3.16.010, 3.16.020)

56468 Authorizes agreement for urban beautification and improvement activities (Special)

56469 Warranty deeds to land reutilization authority (3.82)

56470 Ch. 470, 1960 Code, food service establishments, repeals Ch. 471, 1960 Code (Repealed by 58789)

56471 Vacates January Ave. (Special)

56472 Undeveloped industrial area defined (Special)

56473	Classified service and compensation plan (4.10)
56474	Amends §§ 29.070, 29.150, 1960 Code, development plans (11.06.070, 11.06.150)
56475	Conveys easement rights (Special)
56476	Approves development plan (Special)
56477	Vacates St. Charles Street (Special)
56478	Authorizes contracts for modification of ramps 14 and 15, Interstate Route 55 (Special)
56479	Establishes Amherst Terrace (Special)
56480	Defines blighted area (Special)
56481	Insurance adjusters (8.46)
56482	Approves planned residential redevelopment plan application no. 8 (Special)
56483	Amends §§ 910.020, 912.020, 913.020, 1960 Code, use regulations (26.48.020, 26.56.020, 26.60.020)
56484	Amends § 841.010, 1960 Code (§ 1, Ord. 52786), driver training and testing near schools (Repealed by 57831)
56485	Amends §§ 170.010, 170.020, 170.030, 1960 Code, city court districts, jurisdiction and sessions (3.08.01—3.08.030)
56486	Authorizes contracts for construction Machacek Branch Library (Special)
56487	Amends §§ 399.010, 399.030, 399.390, 399.405, 399.410, 399.420, adds § 399.425, 1960 Code, nonresidential standards (25.32)
56488	Sale of property (Special)
56489	Amends § 915.020, adds §§ 901.107, 901.255, 1960 Code, day nurseries or home for senior citizens (26.08.130, 26.08.140, 26.76.020)
56490	Amends § 915.020, use exceptions for "E" multiple family district (26.76.020)
56491	Authorizes sewer easement grant (Special)
56492	Amends § 51.020(4), 1960 Code, parking meter division personnel (4.30.040, 17.62.250)
56493	Authorizes contracts for St. Louis Convention, Exhibition and Community Center Building (Special)
56494	Amends § 49.020, 1960 Code, treasurer office employee salaries (4.26.020)
56495	Amends § 51.020, 1960 Code, parking meter employees (4.30.020)
56496	Amends § 51.010, 1960 Code, parking meter division employee (4.30.010)
56497	Sheriff office employee salaries (4.36.010—4.36.060)
56498	Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)
56499	Amends § 50.010, 1960 Code, license collector employee salaries (4.28.010)
56500	Amends § 53.010, 1960 Code, recorder of deeds employees salaries (4.34)
56501	Amends § 57.020, 1960 Codc, coroner and morgue employee salaries (4.42.010)
56502	Tower Grove Park employees to included in city insurance program (Special)
56503	Appropriation for development of Lambert-St. Louis International Airport (Special)
56504	Appropriation for current expenses (Special)
56505	Appropriation for current expenses (Special)
56506	Amends § 917.040, 1960 Code, notices of proposed changes in zoning code (26.88.040)
56507	Sale of property, repeals Ord. 56448 (18.04.050)
56508	Amends § 757.020, 1960 Code, drug sales (11.60.020)
56509	Amends Ord. 54220, property description (Special)
56510	Sale of property (Special)
56511	Sale of property (Special)
56512	Directs issuance of bonds (Special)
56513	Traffic-control signals, Hampton Ave. and Wilson Ave. (Not codified)
56514	Repeals §§ 592.010, 592.020, 1960 Code (Ord. 54480) (Repealer)
56515	Appropriation for repairing railroad deck of Douglas MacArthur Bridge (Special)

56516	Authorizes acceptance of funds for traffic-controls at Broadway and Mallinckrodt Street (Special)
56517	Amends § 46.010, 1960 Code, board of aldermen salaries (4.22.010)
56518	Approves project AR-51 (Special)
56519	Approves project CP-50 (Special)
56520	Approves project CPO-7 (Special)
56521	Approves project CR-50 (Special)
56522	Approves project CR-51 (Special)
56523	Approves project ED-50 (Special)
56524	Approves project ED-51 (Special)
56525	Approves project ED-52 (Special)
56526	Approves project EM-52 (Special)
56527	Approves project HE-50 (Special)
56528	Approves project HE-51 (Special)
56529	Approves project HO-50 (Special)
56530	Approves project HO-52 (Special)
56531	Approves project PHY-50 (Special)
56532	Approves project PHY-52 (Special)
56533	Approves project PHY-53 (Special)
56534	Approves project SS-50 (Special)
56535	Approves project SS-51 (Special)
56536	Approves project SS-52 (Special)
56537	Approves project SS-53 (Special)
56538	Approves project SS-54 (Special)
56539	Approves project MCO-1 (Special)
56540	Approves project MCO-2 (Special)
56541	Approves project MCO-3 (Special)
56542	Approves project program administration (Special)
56543	Amends district map 1960, changes zoning to "F" local business district (Special)
56544	Amends district map 1960, changes zoning to "B" two family dwelling district (Special)
56545	Amends district map 1960, changes zoning to "A" single family district (Special)
56546	Authorizes contract for grant OSL-MO- 07-36-101(G) (Special)
56547	Vacates alley (Special)
56548	Vacates Lesperance Mall (Special)
56549	Changes Tesson Street to Weber Drive (Special)
56550	Amends district map 1960, changes zoning to "C" multiple family dwelling district (Special)
56551	Vacates part Sublette Ave. (Special)
56552	Vacates part block 3167 (Special)
56553	Amends §§ 547.230, 553.020, 553.030, 553.040, 554.060, 554.040, 554.050, 555.020, 555.030, 555.035, 1960 Code, water rates (23.04.220, 23.16.040, 23.18.070, 23.18.080, 23.20)
56554	Imposes sales tax (5.24.060—5.24.080)
56555	Approves planned residential development plan application no. 9 (Special)
56556	Defines blighted area (Special)
56557	Vacates alley (Special)
56558	Parking permits for Max C. Starkloff Memorial Hospital (12.04.110, 12.04.120)
56559	Vacates part Second Street (Special)
56560	Amends §§ 842.040, 842.050, 1960 Code, motorcycles in parks (Repealed by 57831)
56561	Vacates Edmund Ave. (Special)
56562	Approves Hereford Street industrial development plan (Special)
56563	Approves development plan (Special)
56564	Amends § 5B, Ord. 56303, use of Locust Street (Repealed by 56646)
56565	Ratifies amendment to project no. 9-23-034-7023, contract no. DOT-FA-70-CE-587 (Special)
56566	Ratifies project no. 8-29-0085-05, contract no. DOT-FA-73-CE-6576 (Special)
56567	Amends district map 1960, changes zoning to "F" local business district (Special)
56568	Vacates alley (Special)
56569	Sale of property (Special)
56570	Amends § 726.085, 1960 Code, amusement rides (8.100.120—8.100.180)

56571 Demolition contractors (Repealed by 56797)

56572 Establishes site for recreation and senior citizen center (Special)

56573 Repeals Ord. 53758 (Repealer)

56574 Appropriation for widening Park Ave. (Special)

56575 Issuance of bonds (Special)

56576 Provides for lease of property for parking facility in Forest Park (Special)

56577 Authorizes payment for city's share of sewer (Special)

56578 Amends Ord. 56504, appropriations (Special)

56579 Abortion clinics (11.28.110—11.28.370)

56580 Speed limit, Riverview Drive, repeals line 6, page 1054a, § 832.050, 1960 Code (Repealed by 57831)

56581 Amends district map 1960, Kingsbury-Washington Terrace Historic District (Special)

56582 Amends §§ 910.020, 912.020, 913.030, 1960 Code, use regulations (26.48.020, 26.56.020, 26.60.020)

56583 Amends district map 1960, changes zoning to "G" commercial district (Special)

56584 Establishes transportation trust fund (5.48)

56585 Adds §§ 470.034, 470.035, 470.036, 1960 Code, food service establishments (Repealed by 58789)

56586 Sale of property (Special)

56587 Parking, St. Charles Street (Not codified)

56588 Traffic-control signals, Goodfellow Boulevard and gates 1 and 2 (Not codified)

56589 Authorizes acceptance of funds for traffic-control signals at Kingshighway Boulevard between Barnes Hospital Plaza and Audubon Ave. (Special)

56590 Submits to voters proposed charter amendments (Charter Art. XXI)

56591 Amends § 756.020, 1960 Code (Ord. 50554), contributing to delinquency of minor (15.108)

56592 Adds §§ 376.052, 376.053, 376.054, 1960 Code, full package and 22% package liquor licenses (Title 14)

56593 Authorizes agreement for construction of health facility (Special)

56594 Authorizes contract no. MO N 24(G), project no. MO N-24 (Special)

56595 Amends § 2, Ord. 56504, appropriations (Special)

56596 Amends § 95, Ord. 56505, appropriations (Special)

56597 Amends § 3, Ord. 56461, appropriations (Special)

56598 Appropriation for nursing and security services for school children (Repealed by 56737)

56599 Authorizes highway safety research (Special)

56600 Appropriation for capital improvements (Special)

56601 Authorizes contracts for Gamble Community Center (Special)

56602 Authorizes contracts for renovation of cottages at Missouri Hills (Special)

56603 Authorizes contracts for installation of dental equipment at Kingshighway Health Center (Special)

56604 Authorizes contracts for renovation of city jail (Special)

56605 Authorizes contracts for repair of city jail (Special)

56606 Authorizes contracts for construction of recreation and senior citizen center (Special) (Repealed by 56744)

56607 Authorizes contracts for repair of elevator in civil court building (Special)

56608 Authorizes contracts for repairs in Lafayette Park (Special)

56609 Extends sales tax (5.24.050)

56610 Authorizes contracts for improvement, Wellington Ave. Bridge (Special)

56611 Authorizes contracts for elevators (Special)

56612	Authorizes contracts for renovation of medium security institution (Special)
56613	Authorizes contracts for fence at medium security institutions (Special)
56614	Authorizes contracts for widening Kingshighway Boulevard (Special)
56615	Authorizes contracts for repair of circuit court rooms (Special)
56616	Authorizes contracts for remodeling visiting booths at city jail (Special)
56617	Authorizes contracts for remodeling sheriff offices (Special)
56618	Authorizes contracts for electrical work at exhibition hall (Special)
56619	Authorizes contracts for construction of ice and roller skating rink (Repealed by 56745)
56620	Authorizes contracts for improvement of Dr. Martin Luther King Drive (Special)
56621	Prohibits unauthorized persons near jail (15.74.130—15.74.150)
56622	Sale agreement for Civic Center Redevelopment Corporation redevelopment rights (Special)
56623	Changes West Spring to Redd Foxx Lane (Special)
56624	Appropriation for development at Jefferson National Expansion Memorial (Special)
56625	Vacates streets and alleys (Special)
56626	Vacates streets and alleys (Special)
56627	Vacates streets and alleys (Special)
56628	Vacates streets and alleys (Special)
56629	Approves development plan (Special)
56630	Establishes convention, exhibition and community center (Special)
56631	Amends §§ 821.010, 821.020, 821.030, 1960 Code, transportation and traffic division (Repealed by 57831)
56632	Applications for building to be reviewed for flood control (25.16)
56633	Flood control programs (25.16)
56634	Authorizes contracts for street improvements (Special)
56635	Amends Ord. 55596, development plan (Special)
56636	Vacates streets and alleys (Special)
56637	Vacates alley (Special)
56638	Authorizes contracts for improvements, President Street (Special)
56639	Conveyance of property, block 175 (Repealed by 56898)
56640	Adds § 696.365(a), 1960 Code, peddlers and hawkers (Repealed by 64569)
56641	Amends §§ 892.010(4), 892.030(a), 1960 Code, snow tires (Repealed by 57831)
56642	Vacates Henrietta Street (Special)
56643	Authorizes contracts for equipment at City Hospital No. 1 (Special)
56644	Authorizes contracts for construction of sewer system (Special)
56645	Defines blighted area (Special)
56646	Restricts use of Locust Street, repeals Ord. 56303 (17.66)
56647	Authorizes lease of wharf (Special)
56648	Appropriation for relocation of tenants of Pruit-Igoe Housing Project (Special)
56649	Amends district map 1960, changes zoning to "J" industrial district (Special)
56650	Amends district map 1960, changes zoning to "G" commercial district (Special)
56651	Amends district map 1960, changes zoning to "J" industrial district (Special)
56652	Authorizes agreement and license to encroach on sewer easement (Special)
56653	Lease agreement for part block 6464 (Special)
56654	Appropriation for repair of railroad deck on Douglas MacArthur Bridge (Special)
56655	Authorizes conveyance of property (Special)
56656	Parking, city hospitals (12.04.070—12.04.120)

56657 Amends district map 1960, changes zoning to "F" local business district (Special)

56658 Appropriation for construction of fire station no. 40-41 (Repealed by 56898)

56659 Authorizes contracts for convention, exhibition and community center building (Special)

56660 Amends Ord. 56476, development plan (Special)

56661 Sale of property (Special)

56662 Sale of property (Special)

56663 Authorizes contracts for public work and improvements (Special)

56664 Supplemental appropriation for current expenses (Special)

56665 Sale of property (Special)

56666 Authorizes contracts for street improvements (Special)

56667 Supplemental appropriation for current expenses (Special)

56668 Authorizes contracts for DOT-FA-74CE-7441 (Special)

56669 Vacates Dr. Martin Luther King Drive, alley, block 168 (Special)

56670 Authorizes contracts for improvement, Kingshighway Boulevard (Special)

56671 Supplemental appropriation for current expenses (Special)

56672 Submits to voters proposed charter amendments (Charter Art. IV § 5)

56673 Sale of property (Special)

56674 Vacates alleys (Special)

56675 Sale of property (Special)

56676 Vacates alleys (Special)

56677 Vacates land, block 4807 (Special)

56678 Vacates alley (Special)

56679 Vacates Second Street (Special)

56680 Vacates alley (Special)

56681 Authorizes contracts to repair cooling tower (Special)

56682 Authorizes contracts for street improvements (Special)

56683 Provides for relief of Billy Joe Wheeler (Special)

56684 Amends district map 1960, changes zoning to "J" industrial district (Special)

56685 Sale of property (Special)

56686 Authorizes lease of parking facility (Special)

56687 Defines blighted industrial area (Special)

56688 Authorizes contracts for flood control structures in River Des Peres drainage area (Special)

56689 Authorizes lease of space in Union Market for Office on Aging (Special)

56690 Amends § 881.010, 1960 Code, designates prohibited parking spaces (Repealed by 57831)

56691 Authorizes amendment to lease (Special)

56692 Amends district map 1960, changes zoning to "J" industrial district (Special)

56693 Authorizes redevelopment agreement for convention hall (Special)

56694 Authorizes contracts for work at Lambert-St. Louis International Airport (Special)

56695 Authorizes contracts for work at Lambert-St. Louis International Airport (Special)

56696 Vacates Whitman Street (Special)

56697 Vacates alley (Special)

56698 Authorizes lease of wharf (Special)

56699 Authorizes assurance of local cooperation in emergency flood control protection (Special)

56700 Authorizes acceptance of Lillian Elizabeth Courtney Health Center (Special)

56701 Authorizes construction of neighborhood commercial centers (Special)

56702 Authorizes contracts for reconstruction of fire station 40-41 (Special)

56703 Authorizes lease of wharf (Special)

56704 Ch. 747, sexually obscene material, repeals §§ 746.050, 746.060, 746.070, 746.080, 1960 Code (15.32.050—15.32.140)

56705 Amends § 535.010, 1960 Code, sexual obscenity (11.58.010, 11.58.170, 11.58.280)

56706 Amends §§ 307.150, 307.190, 1960 Code, taxicab rates to be posted (Repealed by 58795)

56707 Amends Chs. 290—299, 1960 Code, port development and regulation (Title 21)

56708 Establishes community development agency, Ch. 20, 1960 Code, repeals Chs. 20, 31 and 32, 1960 Code (3.48)

56709 Amends § 170.050, 1960 Code, city court holidays and sessions (3.08.050, 3.08.060)

56710 Vacates alleys and streets in Interstate Highway 44 right-of-way (Special)

56711 Authorizes contracts for work at medium security institution building (Special)

56712 Authorizes contracts for construction of underpass (Special)

56713 Authorizes contracts for Milles Fountain in Aloe Plaza (Special)

56714 Authorizes contracts for construction of multipurpose facility (Special)

56715 Establishes offstreet parking facility (Special)

56716 Amends § 86.040, 1960 Code, opening bids (5.58.040)

56717 Defines blighted area (Special)

56718 Amends district map 1960, changes zoning to "G" commercial district (Special)

56719 Amends §§ 59.010, 59.030, 59.040, 59.050, 59.080, 59.090, 1960 Code, retirement system (Repealed by 64833)

56720 Defines blighted area (Special)

56721 Vacates Tenth Street, allev, blocks 468, 462-W (Special)

56722 Vacates streets and alleys (Special)

56723 Vacates streets and alleys (Special)

56724 Federal aid urban program agreement (Special)

56725 Vacates streets and alleys in LaSalle-Park urban renewal project (Special)

56726 Ch. 805, antilitter law, repeals §§ 269,010, 269.020, 269.030. 269,120, 269,140, 269.150, 269.160, 269,170, 269,180, 269.200, 269.210, 269.220, 269,300, 269.310, 269.320, 269,330, 264.110, 264.120, 1960 Code (11.18)

56727 Authorizes contracts for construction at Lambert-St. Louis International Airport (Special)

56728 Unauthorized persons on school property, amends §§ 2(809.020), 3(809.020), Ord. 55065 (15.74.020—15.74.090)

56729 Abortions (11.28.020—11.28.100)

56730 Vacates East Second Street (Special)

56731 Authorizes wharf lease (Special)

56732 Authorizes lease of land (Special)

56733 Amends § 222.040, adds § 222.041, 1960 Code, recreational facilities permits and charges (22.12.040, 22.12.050)

56734 Appropriations for current expenses (Special)

56735 Approves Manchester-Courteau industrial development plan (Special)

56736 Use of private cars for sheriff and deputies (3.54.080—3.54.120)

56737 Repeals Ord. 56598 (Special)

56738 Vacates alley (Special)

56739 Vacates alley (Special)

56740 Vacates alley (Special)

56741 Vacates alley (Special)

56742 Vacates Waterman Boulevard (Special)

56743 Vacates Walsh Street, alley, block 5299-N (Special)

56744 Repeals Ord. 56606 (Repealer)

56745 Repeals Ord. 56619 (Repealer)

56746 Amends § 7, Ord. 55877, vehicles transporting rubbish (11.02.335)

56747 Defines undeveloped industrial area (Special)

56748 Vacates alley (Special)

56749	Authorizes conveyance of easement (Special)
56750	Repeals § 3(301-8-870), Ord. 56461 (Repealer)
56751	Amends § 177.010, 1960 Code, judge and city counselor city court cost fees (3.08.240)
56752	Amends district map 1960, changes zoning to "J" industrial district (Special)
56753	Amends district map 1960, changes zoning to "H" commercial district (Special)
56754	Amends district map 1960, changes zoning to "F" local business district (Special)
56755	Amends district map 1960, changes zoning to "G" commercial district (Special)
56756	Authorizes lease of wharf (Special)
56757	Defines undeveloped industrial area (Special)
56758	Approves development plan (Special)
56759	Defines blighted area (Special)
56760	Defines blighted area (Special)
56761	Vacates alley (Special)
56762	Amends district map 1960, changes zoning to "C" multiple family district (Special)
56763	Amends district map 1960, changes zoning to "J" industrial district (Special)
56764	Vacates Fairfax Ave. (Special)
56765	Vacates McDonald Ave. (Special)
56766	Vacates Ohio Ave. (Special)
56767	Approves development plan (Special)
56768	Amends district map 1960, Central West End historic district (Special)
56769	Vacates Singleton Street, alleys, block 2274 (Special)
56770	Slanted curbing for handicapped (20.26.220)
56771	Establishes hospital revenue fund (5.40)
56772	Approves development plan (Special)
56773	Agreement for real estate tax abatement and payments in lieu of ad valorem property taxes with Convention Plaza Redevelopment Corporation (Special)
56774	Classified service and compensation plan (4.10)
56775	Relocates fire station no. 40-41 (Special)
56776	Authorizes contracts for widening Lansdowne Ave. (Special)
56777	Vacates alley (Special)
56778	Amends § 157.050, adds §§ 157.045, 157.055, 1960 Code, garage business gross receipt tax (8.76.050, 8.76.060, 8.76.070)
56779	Appropriation for construction of flood control structures in River Des Peres drainage area (Special)
56780	Steam supplier gross receipt tax (Ch. 8.88)
56781	Defines blighted area (Special)
56782	Sale of property (Special)
56783	Sale of property (Special)
56784	Approves project PHY-54 (Special)
56785	Sale of property (Special)
56786	Submits to voters proposed charter amendments (Failed)
56787	Amends § 177.010, 1960 Code, increase city court clerk fees (3.08.240)
56788	Adds Ch. 725, 1960 Code, arcades (8.16)
56789	Authorizes contract for acquisition of crash, fire and rescue vehicles (Special)
56790	Permit for park gatherings (22.40)
56791	Defines blighted area (Special)
56792	Authorizes contracts for construction of sprinkler pad park (Special)
56793	Amends § 885.060, 1960 Code, parking meter spaces (Repealed by 57535)
56794	Amends § 51.010, 1960 Code, parking meter division employees (4.30.010)
56795	Amends § 53.010, 1960 Code, recorder of deeds employee salaries (4.34)

56796	Changes St. Louis Chronic Hospital to Harry S. Truman Restorative Center (12.20.010)
56797	Building code, mechanical code, plumbing code, housing code, fire prevention code, repeals Ord. 50502, vol. 2, 1960 Code, Chs. 390, 391, 392, 393, 394, 1960 Code (25.01, 25.03, 25.04)
56798	Amends § 903.060, 1960 Code, nonconforming uses (26.16.050)
56799	Vacates Dorcas Street (Special)
56800	Appropriation for repair of railroad decks on Douglas MacArthur Bridge (Special)
56801	Sheriff office employee salaries (4.36.010—4.36.060)
56802	Amends § 57.020, 1960 Code, coroner and morgue employee salaries (4.42.010)
56803	Amends § 51.020, 1960 Code, parking meter maids (4.30.020)
56804	Amends § 49.020, 1960 Code, treasurer office employee salaries (4.26.020)
56805	Appropriation for capital improvements (Special)
56806	Authorizes lease of wharf (Special)
56807	Authorizes contracts for street improvements (Special)
56808	Authorizes contracts for street improvements (Special)
56809	Changes LaSalle Street to Lebanon Drive (Special)
56810	Approves ABEX industrial development plan (Special)
56811	Approves development plan (Special)
56812	Amends district map 1960, changes zoning to "A" single family district (Special)
56813	Sale of property (Special)
56814	Amends § 46.010, 1960 Code, board of aldermen employee salaries (4.22.010).
56815	Amends § 48.010, 1960 Code, magistrate court employee salaries (4.24.010)
56816	Authorizes acceptance of funds for comprehensive employment and training (Special)
56817	Amends § 50.010, 1960 Code, license collector employee salaries (4.28.010)
56818	Authorizes grant agreement no. OSL-MO-07-36-1010 (Special)
56819	Submits proposals of issuance of bonds to voters (Special)
56820	Revision and codification of ordinances (Special)
56821	Approves grant agreement project no. 8-29-0085-03, contract no. DOT-FA75-CE-7572 (Special)
56822	Amends district map 1960, changes zoning to "I" central business district (Special)
56823	Human resources planning and development officer, repeals Ord. 55599 (3.36.630—3.36.640)
56824	Creates division of relocation services (3.36.550—3.36.565)
56825	Creates division of youth services (3.36.580—3.36.590)
56826	Addition to Lambert-St. Louis International Airport (18.04.030P)
56827	Authorizes contracts for widening Park Ave. (Special)
56828	Authorizes contracts for improvement, Kingshighway Boulevard (Special)
56829	Authorizes contracts for improvement of intersection at McCaustand Ave. and Manchester Ave. (Special)
56830	Vacates alley (Special)
56831	Vacates Dr. Martin Luther King Drive, alley block 123 (Special)
56832	Vacates Hadley Street (Special)
56833	Vacates alleys (Special)
56834	Amends Ord. 56170, contract for construction of Interstate Highway 55 (Special)
56835	Vacates alley (Special)
56836	Approves development plan (Special)
56837	Approves development plan (Special)
56838	Amends § 306.010, 1960 Code, taxicab driver license (Repealed by 58795)
56839	Amends § 308.010, 1960 Code, taxicab license (Repealed by 58795)

56840	Authorizes development by Delta Redevelopment Corporation (Special)
56841	Vacates alley (Special)
56842	Authorizes contracts for waterworks conduit (Special)
56843	Authorizes contract for construction of additions at Lambert-St. Louis International Airport (Special)
56844	Adds § 762.050, 1960 Code, disturbances in areas around jail (15.46.040)
56845	Appropriation for contracts for construction of Missouri Theater Building (Special)
56846	Supplemental appropriation for current expenses (Special)
56847	Amends district map 1960, changes zoning to "G" commercial district (Special)
56848	Office of disaster operations, repeals Ord. 46688 (3.40)
56849	Authorizes use of manual on Uniform Traffic Control Devices for Streets and Highways (Repealed by 57831)
56850	Adds § 881.130, 1960 Code, unlawful use of signs to avoid parking fees (Repealed by 57831)
56851	Supplemental appropriation for current expenses (Special)
56852	Adds §§ 101.050, 101.055, 1960 Code, information of contracts for emergency work (6.08.050, 6.08.060)
56853	Adds §§ 100.041, 100.042, 1960 Code, information with bids for public work contracts (6.04.050, 6.04.060)
56854	Authorizes lease of land at Lambert-St. Louis International Airport (Special)
56855	Amends § 839.080(2), 1960 Code, traffic signals (Repealed by 57831)
56856	Authorizes contracts for workmen's compensation insurance for sheriff and deputies (4.36.070)
56857	Amends § 1, Ord. 56575, issuance of bonds (Special)
56858	Ch. 725A, 1960 Code, public photography studios (8.78)
56859	Amends Ch. 649, 1960 Code, massage and public bath establishments (8.24)
56860	Submits to voters proposed charter amendments (Failed)
56861	Vacates part Arkansas Ave. (Special)
56862	Vacates Convent Street (Special)
56863	Vacates various streets and alleys (Special)
56864	Vacates alley (Special)
56865	Appropriation for street improvements (Special)
56866	Authorizes contracts for emergency work for sidewalks (20.26.230)
56867	Approves development plan (Special)
56868	Authorizes contracts for construction St. Louis Convention, Exhibition and Community Center Building (Special)
56869	Authorizes construction for improvements for St. Louis Award (Special)
56870	Authorizes construction of asphalt pad at parks (Special)
56871	Vacates various streets and alleys (Special)
56872	Authorizes contract for grade separation (Special)
56873	Authorizes contract for improvements to Compton Hill reservoir (Special)
56874	Authorizes alterations to Homer G. Phillips Hospital (Special)
56875	Authorizes construction of city hall masonry (Special)
56876	Authorizes construction at Homer G. Phillips Hospital (Special)
56877	Authorizes construction at fire station no. 20 (Special)
56878	Authorizes sign construction at Kiel Auditorium parking facility (Special)
56879	Authorizes construction of furnace at Fairground Park (Special)
56880	Authorizes construction at park (Special)
56881	Authorizes reroofing Forest Park administration building and service garage (Special)

56882 Authorizes construction at medium security institution (Special)

56883 Authorizes application for authority to establish foreign trade zone (Special)

56884 Vacates Walsh Street (Special)

56885 Authorizes contracts for prisoner exchange with state (Special)

56886 Vacates Illinois Ave. (Special)

56887 Vacates alley (Special)

56888 Transfer of property (Special)

56889 Amends § 17, Ord. 56774, employee classified service (4.10.240)

56890 Acceptance of property (Special)

56891 Declares result of election for issuance of bonds (Special)

56892 Sale of property (Special)

56893 Amends §§ 773.020, 773.030, 773.040, 773.050, 773.060, 1960 Code, prostitution, repeals § 773.070, 1960 Code (Repealed by 57834)

56894 Sale of property (Special)

56895 Authorizes furnishing lighting on private streets (Ch. 20.52)

56896 Sale of property (Special)

56897 Ratifies grant agreement project no. 8-29-0085-08 (Special)

56898 Repeals Ords. 56639 and 56658 (Repealer)

56899 Sale of certain property (Special)

56900 Authorizes supplemental agreement to federal aid urban program (Special)

56901 Submits to voters tax proposal (Special)

56902 Sale of property (Special)

56903 Amends §§ 1, 2, 3, 4, 5, 6, 7, Ord. 56864, vacates alleys, block 2211 (Special)

56904 Harry S. Truman Restorative Center (12.20.010, 12.20.020)

56905 Defines blighted area (Special)

56906 Amends district map 1960, changes zoning to "J" industrial district (Special)

56907 Stage play license tax (8.08.110—8.08.130)

56908 Approves development plan (Special)

56909 Amends § 2, Ord. 55877, dumping permit (11.02.265, 11.02.325)

56910 Ch. 882, 1960 Code, abandoned vehicles, repeals Ch. 289, Ch. 882 (17.56)

56911 Authorizes lease of wharf (Special)

56912 Amends § 1, Ord. 55390, stage plays (8.08.010—8.08.100)

56913 Amends § 145.050, 1960 Code, earnings tax returns (5.22.050)

56914 Amends §§ 901.150, 906.020, 906.070, 906.090, 907.070, 907.090, 908.080, 908.100, 909.020, 1960 Code, adds § 901.435, town houses (Title 26)

56915 Amends district map 1960, changes zoning to "A" single family district (Special)

56916 Amends district map 1960, changes zoning to "I" central business district (Special)

56917 Chs. 280 and 281, 1960 Code, solid waste and sanitation law, repeals Chs. 280, 281, 284, 661, 1960 Code (11.02, Parts I and II)

56918 Amends § 222.040, 1960 Code (Ord. 56733), recreational facilities permits (22.12.040)

56919 Amends § 222.041, 1960 Code (Ord. 56733), tennis court permits (22.12.050)

56920 Authorizes development of neighborhood housing services program (Special)

56921 Authorizes construction at municipal jail (Special)

56922 Authorizes construction of promenade roof deck at Soldier's Memorial (Special)

56923 Authorizes construction at rabies control center (Special)

56924 Authorizes construction of parks (Special)

56925 Authorizes construction of cottage at Missouri Hills (Special)

56926 Authorizes construction at Forest Park (Special)

56927 Authorizes contracts for storm sewer (Special)

56928 Vacates alleys (Special)

56929 Authorizes agreement for sewer easement encroachment (Special)

56930 Traffic-control signals, various intersections (Not codified)

56931 Establishes fund for federal aid to urban projects (Special)

56932 Defines blighted areas (Special)

56933 Approves development plan (Repealed by 58197)

56934 Approves development plan (Special)

56935 Defines blighted areas (Special)

56936 Amends § 833.020, 1960 Code, driving while intoxicated (Repealed by 57831)

56937 Appropriation for street improvements (Special)

56938 Establishes convention and exhibition center commission (3.62)

56939 Establishes port district boundaries (Special)

56940 Rewards for information leading to conviction of employee and officer for acceptance of bribe (15.02.020, 15.02.030)

56941 Appropriation for care of indigent patients (Special)

56942 Amends district map 1960, Visitation Park historic district (Special)

56943 Directs issuance of bonds (Special)

56944 Authorizes application for funding under housing and community development act (Special)

56945 Amends §§ 593.060, 593.070, 1960 Code (Ord. 55944), railroad charges for Douglas MacArthur Bridge (20.06.080, 20.06.090)

56946 Authorizes purchase of land for offstreet parking facilities (Special)

56947 Amends §§ 101.010, 101.020, 101.030, 101.040, 1960 Code, contracts for emergency work (6.08.010—6.08.040)

56948 Appropriation for repair of railroad decks on Douglas MacArthur Bridge (Special)

56949 Authorizes repairs at Lambert-St. Louis International Airport (Special)

56950 Authorizes improvements to Hampton-Berthold (Special)

56951 Authorizes construction at Koch Hospital (Special)

56952 Authorizes construction at Homer G. Phillips Hospital (Special)

56953 Authorizes construction at civil courts building (Special)

56954 Authorizes construction at Lambert-St. Louis International Airport (Special)

56955 Amends district map 1960, changes zoning to "H" district (Special)

56956 Vacates Duncan Ave. (Special)

56957 Vacates alley (Special)

56958 Ch. 903A, 1960 Code, sign control regulations, repeals § 903.040, 904.020(11), amends § 907.020(3) (26.16.140, 26.20, 26.36.020, 26.40.020, 26.68.020—26.68.050)

56959 Authorizes conveyance of easement (Special)

56960 Amends § 1, Ord. 55646, property description (Special)

56961 Vacates alley (Special)

56962 Authorizes construction of sewer improvements (Special)

56963 Approves project no. 8-29-0085-04, contract no. DOT-FA-75-CE-7593 (Special)

56964 Adds §§ 830.070, 839.150, 1960 Code, yield right-of-way to pedestrians (Repealed by 57831)

56965 Authorizes construction at Lambert-St. Louis International Airport (Special)

56966 Authorizes construction at Homer G. Phillips Hospital (Special)

56967 Authorizes contracts for repairs at Chain of Rocks station (Special)

56968 Extends sales tax (5.24.050)

56969 Authorizes payment of sewer costs (Special)

56970	Authorizes agreements for trash containers and private advertisements (Ch. 20.54)
56971	Authorizes construction at Homer G. Phillips Hospital (Special)
56972	Sale of property (Special)
56973	Supplemental appropriation for current expenses (Special)
56974	Authorizes construction at Homer G. Phillips Hospital (Special)
56975	Authorizes construction at Cherokee Recreation Center (Special)
56976	Authorizes construction at Howar Bend Station (Special)
56977	Authorizes construction at Lambert-St. Louis International Airport (Special)
56978	Authorizes construction on Enright Place (Special)
56979	Vacates alley (Special)
56980	Approves development plan (Special)
56981	Defines undeveloped industrial area (Special)
56982	Authorizes urban agreement for improvements to Route 40 (Special)
56983	Amends district map 1960, changes zoning to "F" local business district (Special)
56984	Appropriation for bonded indebtedness (Special)
56985	Penalties and interest on delinquent merchants licenses, taxes and fees (8.56.180)
56986	Penalties and interest on delinquent manufacturers licenses, taxes and fees (8.54.130)
56987	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56988	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56989	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56990	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56991	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56992	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56993	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56994	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56995	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56996	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56997	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56998	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
56999	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
57000	Amends Ch. 696, 1960 Code, license taxes (8.06)
57001	Amends Ch. 402, 1960 Code, license tax on hotels and rooming houses (Repealed by 60828)
57002	Amends Ch. 649, 1960 Code, bath house license tax (8.24.040)
57003	Amends Ch. 525, 1960 Code, fumigator's permit (Repealed by 60735)
57004	Amends Ch. 306, 1960 Code, taxicab driver's license fee (Repealed by 58795)
57005	Amends Ch. 696, 1960 Code, license taxes (Repealed by 60735)
57006	Amends Ch. 621, 1960 Code, laundry license tax (Repealed by 60735)
57007	Amends Ch. 622, 1960 Code, license tax on hat cleaning business (Repealed by 60735)
57008	Amends Ch. 648,1960 code, license tax on barbers (Repealed by 60735)
57009	Amends Ch. 652, 1960 Code, license tax on domestic services (Repealed by 60735)
57010	Amends Ch. 696, 1960 Code, license tax on coin-operated amusement devices (8.06.424, 8.06.426, 8.06.428)
57011	Amends Ch. 151, 1960 Code, cigarette taxes (8.10.050)

57012	Agreement with Washington University Medical Center Redevelopment Corporation (Special)
57013	Amends Ch. 616, 1960 Code, tax on financial agents and institutions (Repealed by 60735)
57014	Amends Ch. 690, 1960 Code, license fee on real estate agents or brokers (8.80)
57015	Addition to Lambert-St. Louis International Airport (18.04.030)
57016	Vacates certain public surface rights (Special)
57017	Vacates certain public surface rights (Special)
57018	Vacates certain public surface rights (Special)
57019	Vacates certain public surface rights (Special)
57020	Repeals Ord. 56899, sale of certain real estate (Special)
57021	Sale of certain real estate (Special)
57022	Establishes taxing district for improvement of alley (Special)
57023	The building, housing maintenance and fire prevention codes of St. Louis, repeals Ord. 56797 (25.04)
57024	Amends Ch. 376, 1960 Code, retail intoxicating liquor licenses and fees (Title 14)
57025	Authorizes street improvement (Special)
57026	Authorizes sidewalk and street improvement (Special)
57027	Authorizes street improvement (Special)
57028	Adds § 11.175 to 1960 Code, financial analyst (Repealed by 58208)
57029	Amends Ord. 56468, contract for grant to acquire and develop land (Special)
57030	Changes zoning of certain property (Special)
57031	Authorizes contract with redevelopment corporation (Special)
57032	Changes zoning of certain property (Special)
57033	Authorizes certain building construction (Special)
57034	Appropriation for construction (Special)
57035	Establishes office of manpower (3.78)
57036	Authorizes lease agreement with airlines (Special)
57037	Authorizes payment of cost of sewer work (Special)
57038	Sale of certain real estate (Special)
57039	Authorizes payment of cost of sewer work (Special)
57040	Authorizes payment of cost of sewer work (Special)
57041	Vacation of certain public surface rights (Special)
57042	Vacation of certain public surface rights (Special)
57043	Appropriation for transportation purposes (Special)
57044	Authorizes lease of mooring rights (Special)
57045	Authorizes lease of mooring rights (Repealed by 59328)
57046	(Repealed by 58056)
57047	Authorizes work on pumping station (Special)
57048	Suspends Ords. 56838 and 56839, taxicab companies (Repealed by 58795)
57049	Authorizes payment for street and bridge improvement (Special)
57050	Authorizes lease of mooring rights (Special)
57051	Approves development plan (Special)
57052	Grants partial tax relief to redevelopment corporation (Special)
57053	Amends Ord. 55901, blight areas (Special)
57054	Approves a development plan (Special)
57055	Vacates certain public surface rights (Special)
57056	Authorizes agreement for criminal justice computerized information processing service (3.80)

57057 Authorizes addition to airport and landing field (Special)

57058 Amends Ch. 145, 1960 Code, promoter or booking agent earnings tax (Repealed by 62516)

57059 Authorizes street improvement (Special)

57060 Authorizes funds for transportation purposes (Special)

57061 Stop intersection, Russell Boulevard (Not codified)

57062 Establishes special pay period reserve fund (5.44)

57063 Vacates rights-of-way in Dr. Martin Luther King Drive (Special)

57064 Vacates portion of Twelfth Street (Special)

57065 Authorizes agreement for public improvements (Special)

57066 Amends Ch. 747, 1960 Code, public display of sexually obscene material (15.32.070)

57067 Authorizes airfield improvements (Special)

57068 Changes zoning of certain property (Special)

57069 Vacates public surface rights (Special)

57070 Amends Ch. 470, 1960 Code, mobile food service (Repealed by 58789)

57071 Reenacts § 649.040, 1960 Code, massage or public bath establishment (8.24.040)

57072 Vacates certain public surface rights (Special)

57073 Vacates certain public surface rights (Special)

57074 Amends Ord. 57016, street vacation (Special)

57075 Vacates certain public surface rights (Special)

57076 Changes name of Kansas Street Bridge to Frank T. Hilliker Bridge (Special)

57077 Amends §§ 51.020, 881.110 and 890.020, 1960 Code, penalties for violations of posted notices on streets to be cleaned (4.30.040, 4.30.050)

57078 Designates certain areas as historic district (Special)

57079 Changes zoning of certain property (Special)

57080 Authorizes sale of certain real estate (Special)

57081 Appropriation for airport improvement (Special)

57082 Proposed amendment to Charter Art. XVI § 3 (Charter Art. XVI)

57083 Appropriation (Special)

57084 Proposed amendment to Charter Art. IV § 2 (Failed)

57085 Approves development plan (Special)

57086 Adds § 388.115, 1960 Code, parking station (8.70.185)

57087 Designates one way streets (Not codified)

57088 Stopping on Olive Street (Not codified)

57089 Amends §§ 547.230, 553.020—040, 553.060, 554.040, 554.050, 555.020—555.035, 1960c., water rates and charges (23.04.220, 23.16.020—23.16.040, 23.18.080, Ch. 23.20)

57090 Vacation of public surface rights (Special)

57091 Vacation of public surface rights (Special)

57092 Vacation of public surface rights (Special)

57093 Repeals and replaces §§ 268.010 and 268.030, 1960 Code, sidewalk permits (20.36.010, 20.36.030)

57094 Public work improvement (Special)

57095 Replacement bridge over River Des Peres (Special)

57096 Authorizes election for bond issue (Special)

57097 Curfew at Dickman Park (Repealed by 58262)

57098 Repeals Ord. 57002 (Repealer)

57099 Authorizes grant agreement (Special)

57100 Easement deed (Special)

57101 Amends § 11.175, 1960 C., financial analyst (Repealed by 58208)

57102 Appropriation for aldermen (Special)

57103 Amends § 696.299, 1960 C., license tax on watercraft and mooring business (Repealed by 60735)

57104 Supplementary appropriation (Special)

57105 Public work improvement (Special)

57106 Repeals and replaces § 307.100, 1960 Code, taxicab drivers (Repealed by 58795)

57107 Sale of real estate (Special)

57108 Lease agreement (Special)

57109 Redevelopment of blighted area (Special)

57110 Airport revenue bonds (Special)

57111 Authorization for design and construction of Circuit Court Facilities (Special)

57112 Amends § 553.070, 1960 Code, water rate for swimming pools (23.16.080)

57113 Public work improvement (Special)

57114 Licensing and regulation of hotel or motel transport vehicles (Repealed by 58795)

57115 Appropriation (Special)

57116 Adds (2) and (3) to § 145.060, 1960 C., withholding tax (5.22.060)

57117 Proposed amendment to Art. VIII, § 2 of charter (Charter, Art. VIII)

57118 Rezone (Special)

57119 Rezone (Special)

57120 Purchase of fire equipment (Special)

57121 Public work improvement (Special)

57122 Sale of real estate (Special)

57123 Regulation of manufacture, use and possession of firearms (8.41.010, 8.41.020)

57124 Plumbers (8.75.020)

57125 Street improvements (Special)

57126 Restricted use of curb lanes (Repealed by 58629)

57127 Adjustment of street network (Special)

57128 Application for funding under HUD Act of 1974 (Special)

57129 Amends § 1 of Ord. 56930, traffic signals (Not codified)

57130 Enacts § 802.050, 1960 C., conduct at athletic events (15.54.050)

57131 Rezone (Special)

57132 Rezone (Special)

57133 Public work improvement (Special)

57134 Vacation of public right-of-way (Special)

57135 Vacation of public right-of-way (Special)

57136 Vacation of public surface rights (Special)

57137 Vacation of public surface rights (Special)

57138 Public work improvement (Special)

57139 Public work improvement center (Special)

57140 Public work improvement (Special)

57141 Public work improvement (Special)

57142 Public work improvement (Special)

57143 Public work improvement (Special)

57144 Public work improvement (Special)

57145 Public work improvement (Special)

57146 Public work improvement (Special)

57147 Appropriations (Special)

57148 Public work improvement (Special)

57149 Public work improvement (Special)

57150 Public work improvement (Special)

57151 Public work improvement (Special)

57152 Public work improvement (Special)

57153 Public work improvement (Special)

57154 Proposed amendment to Charter Art. XVIII, §§ 3(b) and 4(a) (Failed)

57155 Proposed amendment to Charter Art. VIII § 8 (Failed)

57156 Proposed amendment to Charter Art. I § 1 (4) (Failed)

57157 Public work improvement (Special)

57158 Public work improvement (Special)

57159 Public work improvement (Special)

57160 Authorizes sewer construction work (Special)

57161 Appointment of and salaries of employees in Collector of Revenue's office (4.44)

57162 Repeals and replaces § 3 of Ord. 56685, sale of real estate (Special)

57163 Public work improvement (Special)

57164 Authorizes airfield improvements (Special)

57165 Authorizes airfield improvements (Special)

57166 Authorizes airfield improvements (Special)

57167 Prohibits sale of kites which conduct electrical current (15.155)

57168 Rezone (Special)

57169 Restrictions on advertising by licensed plumbers (8.75.010)

57170 Authorizes airfield improvements (Special)

57171 Public work improvement (Special)

57172 Proposed amendment to Charter Art. XIII §§ 1 and 14-A (Failed)

57173 Human Relations and Equal Opportunity Enforcement Commission; repeals Ords. 451.84, 50553, 51512, 51635 and 52328 (Repealed by 62710)

57174 Accepts easement from Missouri Pacific Railroad Company (Special)

57175 Vacation of public surface rights (Special)

57176 Vacation of public surface rights (Special)

57177 Rezone (Special)

57178 Appropriations (Special)

57179 Extends 1% sales tax (5.24.050)

57180 Salaries of employees in Sheriff's office; repeals Ord. 56801 (4.36)

57181 Repeals and replaces § 48.010, 1960 Code, Magistrate Court employee salaries (4.24)

57182 Repeals and replaces § 53.010, 1960 Code Recorder of Deeds employee salaries (4.34)

57183 Repeals and replaces § 57.020, 1960 Code, coroner and morgue employee salaries (4.42)

57184 Repeals and replaces § 49.020, 1960 Code, treasurer office employee salaries (4.26.020)

57185 Repeals and replaces § 51.020 (a) and (b), 1960 Code, parking meter division employee salaries (4.30)

57186 Repeals and replaces § 51.010, 1960 Code, parking meter division employees (4.30)

57187 Repeals and replaces § 46.010, 1960 Code, Board of Aldermen employee salaries (4.22.010)

57188 Repeals and replaces § 50.010, 1960 Code, license collector employee salaries (4.28.010)

57189 Public work improvement (Special)

57190 Establishes access roadways (Special)

57191 Amends §§ 167.020 and 267.030, 1960 Code; deletes § 267.070, 1960 Code; removal of railroad tracks (20.34.020, 20.34.030)

57192 Repeals and replaces § 1 of Ord. 57161, Collector of Revenue employee salaries (4.44)

57193 Replacement of stop signs (17.08.075)

57194 Stopping of vehicles on Olive Street (Not codified)

57195 Authorizes airfield improvements (Special)

57196 Authorizes airfield improvements (Special)

57197 Authorizes airfield improvements (Special)

57198 Authorizes maintenance of airport grounds (Special)

57199 Authorizes airfield improvements (Special)

57200 Repeals and replaces § 1 of Ord. 57059, street improvement (Special)

57201 Authorizes airfield improvements (Special)

57202 Authorizes airfield maintenance (Special)

57203	Public work improvement (Special)
57204	Public work improvement (Special)
57205	Public work improvement (Special)
57206	Vacation of public surface rights (Special)
57207	Vacation of public surface rights (Special)
57208	Vacation of public surface rights (Repealed by 58707)
57209	Sale of real property (Special)
57210	Vacation of public surface rights (Special)
57211	Vacation of public surface rights (Special)
57212	Repeals and replaces § 6 of Ord. 56476, development plan (Special)
57213	Change in traffic use patterns (Special)
57214	Repeals and replaces § 265.120, 1960 Code, excavation inspections (20.30.140)
57215	Vacation of public surface rights (Special)
57216	Redevelopment of blighted area (Special)
57217	Development plan approval (Special)
57218	Repeals and replaces § 2 of Ord. 51288, regulates wreckers (8.110.020)
57219	Appropriation (Special)
57220	Appropriation (Special)
57221	Adds § 610.200, 1960 Code, filing license applications or tax returns (8.02.180)
57222	Sale of real estate (Special)
57223	Repeals and replaces §§ 268.010 and 268.030, 1960 Code; adds §§ 268.040 and 268.050, 1960 Code, merchants' use of streets and sidewalks (20.36.010, 20.36.030—20.36.050)
57224	Public work improvements (Special)
57225	Public work improvements (Special)
57226	Public work improvements (Special)
57227	Public work improvements (Special)
57228	Authorizes airfield improvements (Special)
57229	Deed of easement to Union Electric Company (Special)
57230	Sale of real estate (Special)
57231	Appropriation (Special)
57232	Vacation of public surface rights (Special)
57233	Vacation of public surface rights (Special)
57234	Rezone (Special)
57235	Appropriation (Special)
57236	Repeals and replaces §§ 118.4.4, Part I; 1311.1, Part II; H-403.5, Part V; F-2904.b (3) of Ord. 57023; adds Notes 1 and 2 to Table 1-E, Part I and § 118.4.7, Part I, of Ord. 57023, building code (25.01)
57237	Vacation of public surface rights (Special)
57238	Street improvements (Special)
57239	Authorizes provision for traffic study (Special)
57240	Street closures (Special)
57241	Vacation of public surface rights (Special)
57242	Repeals and replaces § 8(b) of Ord. 48894, parking (Repealed by 57831)
57243	Vacation of public surface rights (Special)
57244	Street name change (Special)
57245	Repeals and replaces portion of Table 1-C, carnival permit, on page 31 of Ord. 57023, building code (25.01)
57246	Repeals and replaces §§ 833.010, 833.020, 833.030 and 833.040, 1960 Code, driving while under influence of alcohol (Repealed by 57831)
57247	Repeals and replaces Ord. 55925, street use permits (20.46)
57248	Sale of real property (Special)
57249	Adds §§ 764.020(7) and 764.020(7)(a), 1960 Code, vagrants (15.58.010)
57250	Authorizes contract with State Highway Commission and Norfolk and Western Railway Company (Special)
57251	Public work improvements (Special)

57252	Application for funding with HUD (Special)
57253	Repeals and replaces § 4 of Ord. 57148, appropriation (Special)
57254	Adds §§ 9 and 10 to Ord. 56868, Convention, Exhibition and Community Center Building (Special)
57255	Vacation of public surface rights (Repealed by 57633)
57256	Vacation of public surface rights (Special)
57257	Street closure (Repealed by 58292)
57258	Street closure (Special)
57259	Development of blighted area (Special)
57260	Vacation of public surface rights (Special)
57261	Contract with Consolidated Neighborhood Services (Special)
57262	Application for funding under Title I of Public Works Employment Act of 1976 (Special)
57263	Vacation of public surface rights (Special)
57264	Repeals and replaces §§ 267.020 and 267.030, 1960 Code, removal of railroad tracks (20.34.020, 20.34.030)
57265	Vacation of public right-of-way (Special)
57266	Public work improvement (Special)
57267	Street improvement (Special)
57268	Public work improvement (Special)
57269	Lease agreement with Ozark Air Lines, Inc. (Special)
57270	Amends §§ 1, 2 and 3 of Ord. 57035, agency on training and employment (3.78)
57271	Public work improvement (Special)
57272	Lease agreement with Ozark Air Lines Credit Union (Special)
57273	Authorizes conveyance of rights, title and interest in easement for highway construction (Special)
57274	Speed limits (Not codified)
57275	Rezone (Special)
57276	Regulates employer and employee relationship in city's classified service (4.10)
57277	Appropriation (Special)
57278	Contract for federal assistance (Special)
57279	Public work improvement (Special)
57280	Public work improvement (Special)
57281	Amends § 307.140, 1960 Code, taxicabs (Repealed by 58795)
57282	Approves development plan (Special)
57283	Easements for sewer purposes (Special)
57284	Public work improvement (Special)
57285	Rezone (Special)
57286	Approves development plan (Special)
57287	Adds § 207.020, 1960 Code, working jail prisoners (16.16.215, 16.16.217)
57288	Prohibits certain new curb cuts (Special)
57289	Public work improvement (Special)
57290	Public work improvement (Special)
57291	Public work improvement (Special)
57292	Vacation of public surface rights (Special)
57293	Repeals and replaces § 372.301, 1960 Code, intoxicating liquor (Title 14)
57294	Amends §§ 725.010, 725.100, 725.050, 725.060, and 725.080, 1960 Code, arcades (8.16.010, 8.16.050, 8.16.060, 8.16.080, 8.16.100)
57295	Property lease agreement (Special)
57296	Amends § 146.180, 1960 Code, merchant licenses, taxes and fees (8.56.180)
57297	Public work improvements (Special)
57298	Proposed amendment to Charter, Art. VIII, § 8 (Failed)
57299	Proposed amendment to Charter, Art. XVIII, § 1(h) (Failed)
57300	Rezone (Special)
57301	Repeals and replaces §§ C.2.2.5, C.2.2.6, C.2.2.11A, and C.2.2.12 of Part IV, Appendix C of Ord. 57023, building code (25.01)
57302	Adds sentence to § 157.060, 1960 Code, public garages (8.76.080)
57303	Appropriation (Special)

57304	Appropriation (Special)
57305	Quitclaim deed (Special)
57306	Repeals and replaces § 10 of Ord. 56868, contract for construction of St. Louis Convention Center Building (Special)
57307	Authorizes sewer construction (Special)
57308	Repeals and replaces § 5 of Ord. 56938, manager of St. Louis Gateway Convention and Exhibition Center (3.62.050)
57309	Repeals and replaces § 4 of Ord. 57144, public work improvement (Special)
57310	Office of management services (5.14.011—5.14.013)
57311	Amends § 2 of Ord. 56938, St. Louis Gateway Convention and Exhibition Center (Repealed by 58861)
57312	Authorizes street construction (Special)
57313	Repeals and replaces § 432.020, 1960 Code, cemeteries (11.62.280)
57314	Rezone (Special)
57315	Vacation of public surface rights (Special)
57316	Lease agreement (Repealed by 64532)
57317	Authorizes contract for data processingstudy (Special)
57318	Development of unlighted area (Special)
57319	Public work improvement (Special)
57320	Public work improvement (Special)
57321	Public work improvement (Special)
57322	Repeals and replaces §§ 510.170, 510.190 and 510.200, 1960 Code; repeals § 510.180, 1960 Code, rabies control center (10.04)
57323	Vacation of public surface rights (Special)
57324	Public work improvement (Special)
57325	Public work improvement (Special)
57326	Port development and regulations; repeals Ch. 299 of Ord. 56707 (21.08.020—21.08.050, 21.08.070, 21.12.010—21.12.040, 21.20.080, 21.36)
57327	Vacation of right-of-way (Special)
57328	Authorizes agreement with Missouri Pacific Railroad Company (Repealed by 57897)
57329	Authorizes quitclaim deed (Special)
57330	Repeals and replaces § 46.010, 1960 Code, salaries of board of aldermen (4.22.010)
57331	Repeals and replaces § 1 of Ord. 57192, salaries of tax and water division employees (4.44)
57332	Expands duties of city treasurer (5.12.040—5.12.150)
57333	Public work improvement (Special)
57334	Vacation of public surface rights (Special)
57335	Adds paragraph to § 795.010, 1960 Code, delivery personnel (15.74.120)
57336	Street closure (Special)
57337	Public work improvement (Special)
57338	Public work improvement (Special)
57339	Public work improvement (Special)
57340	Appropriation (Special)
57341	Lease with Ninety-Fourth of St. Louis, Inc. (Special)
57342	Repeals and replaces § 48.010, 1960 Code, magistrate court employee salaries (4.24)
57343	Authorizes quitclaim deed (Special)
57344	Repeals and replaces § 51.010, 1960 Code, parking meter division employee salaries (4.30)
57345	Repeals and replaces § 49.020, 1960 Code, treasury division employee salaries (4.26.020)
57346	Repeals and replaces § 51.020, 1960 Code, parking meter division employee salaries (4.30)
57347	Authorizes agreement with airlines at Lambert-St. Louis International Airport (Special)
57348	Appropriation (Special)
57349	Repeals Ord. 56446 and § 263.011, 1960 Code (Repealer)
57350	Repeals Ord. 55219 (Repealer)

57351	Authorizes issuance of tax bills for sidewalk repair (20.26.210)
57352	Repeals and replaces § 53.010, 1960 Code, recorder of deeds employee salaries (4.34)
57353	Public work improvement (Special)
57354	Repeals and replaces §§ 59.010, 59.020, 59.030, 59.040, 50.050, 59.060, 59.070, 59.080, 59.130, and 59.150, 1960 Code, retirement system (Repealed by 64833)
57355	Public work improvement (Special)
57356	Public work improvement (Special)
57357	Appropriation (Special)
57358	Repeals and replaces Ord. 57046, storage of water vehicles (Repealed by 58056)
57359	Street name change (Special)
57360	Naming alley (Special)
57361	Street name change (Special)
57362	Vacation of public surface rights (Repealed by 57581)
57363	Repeals and replaces § 50.010, 1960 Code, license collector employee salaries (4.28.010)
57364	Appropriation (Special)
57365	Annual appropriation (Special)
57366	Sale of real estate (Special)
57367	Application for funding under Housing and Community Development Act of 1977 (Special)
57368	Repeals and replaces §§ 59.0,170 and 59.130, 1960 Code, retirement system (Repealed by 64833)
57369	Repeals and replaces § 4 of Ord. 56610, improvement to Wellington Avenue Bridge (Special)
57370	Public work improvement (Special)
57371	Street closure (Special)
57372	Public work improvement (Special)
57373	Public work improvement (Special)
57374	Public work improvement (Special)
57375	Vacation of public surface rights (Special)
57376	Public work improvement (Special)
57377	Public alley established (Special)
57378	Vacation of public surface rights (Special)
57379	Vacation of public surface rights (Repealed by 57640)
57380	Contract with Black & Veatch, Consulting Engineers (Special)
57381	Repeals and replaces (e) of § 1 of Ord. 56893 and § 773.040, 1960 Code, illegal sexual conduct (Repealed by 57834)
57382	Authorizes applications under Title I of Public Works Employment Act of 1976 (Special)
57383	Public work improvement (Special)
57384	Street closure (Repealed by 64481)
57385	Vacation of public surface rights (Special)
57386	Lease agreement with Union Electric Company (Special)
57387	Park curfews (Repealed by 581-62)
57388	Appropriation (Special)
57389	Amends Ords. 54994 and 55321, blighted areas (Special)
57390	Public work improvement (Special)
57391	Public work improvement (Special)
57392	Public work improvement (Special)
57393	Public work improvement (Special)
57394	Repeals and replaces § 773.060, 1960 Code, prostitution (Repealed by 57834)
57395	Redevelopment of blighted area (Special)
57396	Repeals and replaces § 4 of Ord. 57153, appropriation (Special)
57397	Deletes "Rutger Street at the East Line of Jefferson Avenue" from § 1 of Ord. 57240, street closure (Special)
57398	Redevelopment of blighted area (Special)
57399	Lease agreement with Apex Oil Company (Special)
57400	Agreement with the Land Clearance for Redevelopment Authority of the city of St. Louis (Special)
57401	Access easement deed (Repealed by 57495)

57402 Approves development plan (Special)

57403 Approves development plan (Special)

57404 Adds new Ch. 729, 1960 Code, tattoo parlors (8.97)

57405 Street closure (Special)

57406 Vacation of public surface rights (Special)

57407 Authorizes establishment of regional department of corrections (3.67)

57408 Vacation of public surface rights (Special)

57409 Public work improvement (Special)

57410 Authorizes entrance into Safer Off-System Roads Program Agreement (Special)

57411 Authorizes traffic and transportation study (Special)

57412 Street and bridge improvements (Special)

57413 Appropriation (Special)

57414 Amends § 372.250, 1960 Code, control of alcoholic beverages (14.12.280)

57415 Addition to public airport (Special)

57416 Rezone (Special)

57417 Amendment Number 1 to Federal Aviation Administration Probject Number 6-29-0085-09 (Special)

57418 Authorizes airfield work (Special)

57419 Authorizes airfield work (Special)

57420 Authorizes airfield work (Special)

57421 Authorizes airfield work (Special)

57422 Authorizes airfield work (Special)

57423 Authorizes repairs to cottages at Missouri Hills (Special)

57424 Repeals and replaces § 682.030, 1960 Code, junkyards (8.50.030)

57425 Rezone (Special)

57426 Rezone (Special)

57427 Public work improvement (Special)

57428 Amends § 10 of Ord. 56868, appropriation for construction of Convention Center (Special)

57429 Repeals and replaces § 1 of Ord. 56845, purchase and rehabilitation of the Missouri Theatre Building (Special)

57430 Repeals and replaces § 599.010, blocking of streets by railroads (Repealed by 57831)

57431 Notice to board of aldermen concerning issuance of permits or licenses (Repealed by 57544)

57432 Establishes office of the disabled (3.36.730—3.36.760)

57433 Public work improvement (Special)

57434 Public work improvement (Special)

57435 Public work improvement (Special)

57436 Sale of real estate (Special)

57437 Public work improvement (Special)

57438 Sale of real property (Special)

57439 Public work improvement (Special)

57440 Amendment to lease AL-59 (Special)

57441 Deed of easement (Special)

57442 New operating section to annual budget appropriation (Special)

57443 Acquisition of land for storage of motor vehicles (Special)

57444 Vacation of public surface rights (Special)

57445 Public work improvement (Special)

57446 Adds §§ 376.033 and 376.034, 1960 Code, liquor licenses (Title 14)

57447 Repeals Ch. 769, 1960 Code (Repealer)

57448 Vacation of air rights (Special)

57449 Vacation of public rights-of-way (Special)

57450 Transfer of property rights and redevelopment and tax abatement privileges (Special)

57451 Appropriation (Special)

57452 Street closure (Special)

57453 Public work improvement (Special)

57454 Enacts Ch. 914C, 1960 Code, adult bookstores, adult motion picture theaters, adult peep shows and massage parlors (Title 26)

57455 Repeals and replaces § 915.050, 1960 Code, community unit plans (Title 26)

57456 Appropriation (Special)

57457 Truck regulation in certain area (17.68)

57458 Rezone (Special)

57459 Adds new operating section to annual budget appropriation (Special)

57460 Appropriation (Special)

57461 Street closure (Special)

57462 Sale of trash to energy plant property (Special)

57463 Appropriation (Special)

57464 Public work improvement (Special)

57465 Authorizes repairs to city power plants (Special)

57466 Appropriation (Special)

57467 Appropriation (Special)

57468 Appropriation (Special)

57469 Appropriation (Special)

57470 Appropriation (Special)

57471 Appropriation (Special)

57472 Appropriation (Special)

57473 Appropriation (Special)

57474 Appropriation (Special)

57475 Appropriation (Special)

57476 Appropriation (Special)

57477 Appropriation (Special)

57478 Appropriation (Special)

57479 Appropriation (Special)

57480 Appropriation (Special)

57481 Repeals and replaces § 2 of Ord. 57126, use of curb lanes (Repealed by 58629)

57482 Repeals § 2 of Ord. 57404 (Repealer)

57483 Amends §§ 1, 2, 4, 5, 6 and 7 of Ord. 56938, convention and exhibition center commission (3.62)

57484 Historic district designated (Special)

57485 Appropriation (Special)

57486 Sale of real estate (Repealed by 57693)

57487 Repeals and reenacts § 2 of Ord. 55387 and § 697.030, 1960 Code, payment of license taxes by contractors (8.12.030)

57488 Repeals and replaces § 1 of Ord. 48756, parking of city vehicles (Repealed by 57831)

57489 Appropriation (Special)

57490 Appropriation (Repealed by 57534)

57491 Application to HUD for funding (Special)

57492 Repeals and replaces § 20.100, 1960 Code, community development commission (Ch. 3.48)

57493 Vacation of public right-of-way (Special)

57494 Amends (2) of § 715.010, 1960 Code, public dances (8.32.010)

57495 Repeals Ord. 57401 (Repealer)

57496 Authorizes agreement with Federal Aviation Administration (Special)

57497 Street closure (Special)

57498 Street closure (Special)

57499 Exchange of real property (Special)

57500 Repeals and replaces §§ 2, 9 and 12 of Ord. 57332, city treasurer (5.12.050, 5.12.120, 5.12.150)

57501 Authorizes application for participation in Homesteading Program (Not codified)

57502 Adds (d) to § 700.031 and § 700.032, 1960 Code, pawnbrokers (8.72.030, 8.72.035)

57503 Food service establishments (11.42.550—11.42.575)

57504 Vacation of public surface rights (Special)

57505 Adds Ch. 471, 1960 Code, frozen dessert sanitation (Ch. 11.52)

57506 Appropriation (Special)

57507 Vacation of public surface rights (Special)

57508 Contract with Southwestern Bell Telephone Company and St. Louis County (Special)

57509 Amends § 11.090, 1960 Code; repeals Ord. 55267; compensation of board of aldermen (3.06.090)

57510	Easement to Union Electric Company (Special)
57511	Rezone (Special)
57512	Amends § 1 of Ord. 56939, official port district (Special)
57513	Authorizes application for funding with HUD (Special)
57514	Appropriation (Special)
57515	Sewer construction work (Special)
57516	Appropriation (Special)
57517	Appropriation (Special)
57518	Vacation of public rights-of-way (Special)
57519	Public work improvement (Special)
57520	Public work improvement (Special)
57521	Public work improvement (Special)
57522	Public work improvement (Special)
57523	Public work improvement (Special)
57524	Approves development plan (Special)
57525	Appropriation (Special)
57526	Appropriation (Special)
57527	Appropriation (Special)
57528	Appropriation (Special)
57529	Appropriation (Special)
57530	Appropriation (Special)
57531	Appropriation (Special)
57532	Appropriation (Special)
57533	Appropriation (Special)
57534	Appropriation; repeals Ord. 57490 (Special)
57535	Parking meters; repeals §§ 885.060 and 885.065, 1960 Code (17.62.140—17.62.190)
57536	Appropriation (Special)
57537	Appropriation (Special)
57538	Repeals and replaces § 4 of Ord. 57144, construction of Walnut Park Community Center (Special)
57539	Public work improvement (Special)
57540	Repeals and replaces § 4 of Ord. 57339, alterations to city morgue (Special)
57541	St. Louis Convention Center Refunding Bond Ordinance (Special)
57542	Appropriation (Special)
57543	Repeals and replaces part designated as "Baden" in § 1 of Ord. 55901, blighted area (Special)
57544	Issuance of permits; repeals Ord. 57431 (3.02.030—3.02.050)
57545	Rezone (Special)
57546	Appropriation (Special)
57547	Appropriation (Special)
57548	Appropriation (Special)
57549	Vacation of public surface rights (Special)
57550	Acquisition of unimproved real property (Special)
57551	Repeals and replaces § 130.3 of Ord. 57023, building code (Ch. 25.01)
57552	Public work improvements (Special)
57553	Vacation of public rights-of-way (Special)
57554	Vacation of public rights-of-way (Special)
57555	Repair of residential walks (20.26.240—20.26.280)
57556	Repeals and replaces subsection 1 of § 1 of Ord. 57258, street closure (Special)
57557	Street closure (Special)
57558	Sale of real estate (Special)
57559	Development of blighted area (Special)
57560	Public work improvement (Special)
57561	Public work improvement (Special)
57562	Public work improvement (Special)
57563	Public work improvement (Special)
57564	Redevelopment of blighted area (Special)
57565	Approves development plan (Special)
57566	Public work improvement (Special)
57567	Public work improvement Building (Special)
57568	Authorizes street improvements (Special)

57569 Vacation of public rights-of-way (Special)

57570 Changes portion of Tenth Street to Tenth Street Pedestrian Mall (Special)

57571 Public work improvement (Special)

57572 Public work improvement (Special)

57573 Public work improvement (Special)

57574 Appropriations (Special)

57575 Appropriation (Special)

57576 Appropriation (Special)

57577 Appropriation (Special)

57578 Redevelopment of blighted area (Special)

57579 Vacation of public surface rights (Special)

57580 Vacation of public surface rights (Special)

57581 Vacation of public surface rights; repeals Ord. 57362 (Repealed by 57767)

57582 Vacation of public surface rights (Special)

57583 Repeals and replaces § 29.104 of Ord. 52030, hawkers and peddlers (Repealed by 64569)

57584 Prohibits operation of vehicles carrying flammable liquids in central business district (Ch. 17.69)

57585 Lease agreement corporation (Special)

57586 Application to HUD for funding (Special)

57587 Application to HUD for funding (Special)

57588 (Not codified)

57589 Appropriation (Special)

57590 Repeals and replaces § 909.020, 1960 Code, zoning (Title 26)

57591 Sale of real estate (Special)

57592 Appropriation (Special)

57593 Appropriation (Special)

57594 Appropriation (Special)

57595 Appropriation (Special)

57596 Appropriation (Special)

57597 Appropriation (Special)

57598 Appropriation (Special)

57599 Street improvements (Special)

57600 Public work improvement (Special)

57601 Public work improvement (Special)

57602 Appropriations (Special)

57603 Repeals and replaces §§ 335.210, 335.220, 335.230, 335.480, and 335.500, 1960 Code, retirement system (4.18.120—4.18.120, 4.18.260, 4.18.270)

57604 Curfew in Berra Park (Repealed by 58262)

57605 Repeals and replaces § 1 of Ord. 57387, curfew in Hickey Park, Berra Park and Pontiac Central Park (Repealed by 58262)

57606 Street closure (Repealed by 57823)

57607 Appropriation (Special)

57608 Appropriation (Special)

57609 Appropriation (Special)

57610 Appropriation (Special)

57611 Repeals and replaces § 24.040, 1960 Code, Landmarks Commission (Repealed by 57986)

57612 Appropriation (Special)

57613 Issuance of revenue bonds (Special)

57614 Authorizes contract providing federal assistance (Special)

57615 Contract with Missouri State Highway Commission (Special)

57616 Proposed charter amendments to Art. VIII, § 8 (Failed)

57617 Rezone (Special)

57618 Repeals Ord. 53049 (Repealer)

57619 Sale of real property (Repealer)

57620 Approves agreement for disposing of outdated shelter supplies to the city (Special)

57621 Rezone (Special)

57622 Appropriation (Special)

57623 Appropriation (Special)

57624 Approves development plan (Special)

57625 Street improvement (Special)

57626	Amends (a) and (c) of § 1 of Ord. 57247, street use permits (20.46)
57627	Appropriation (Special)
57628	Repeals and replaces § 245.070, 1960 Code, weed and debris removal (11.04.070)
57629	Appropriation (Special)
57630	Appropriation (Special)
57631	Appropriation (Special)
57632	Appropriation (Special)
57633	Vacation of public surface rights, repeals Ord. 57255 (Special)
57634	Authorizes lease of building (Special)
57635	Vacation of public surface rights (Special)
57636	Appropriation (Special)
57637	Vacation of public surface rights (Special)
57638	Appropriation (Special)
57639	Appropriation (Special)
57640	Vacation of public surface rights; repeals Ord. 57379 (Special)
57641	Approves application to HUD (Special)
57642	Vacation of public surface rights (Special)
57643	Vacation of public surface rights (Special)
57644	Easement deed (Special)
57645	Street closure (Repealed by 57984)
57646	Sale of real estate (Special)
57647	Vacation of public surface rights (Special)
57648	Vacation of public surface rights (Special)
57649	Sale of real estate (Special)
57650	Regulates employer and employee relationships (4.10)
57651	Public work improvement (Special)
57652	Vacation of public right-of-way (Special)
57653	Reserve parking for police vehicles (17.72)
57654	Approves development plan (Special)
57655	Amends Ord. 48729, development of blighted area (Special)
57656	Approves redevelopment plan (Special)
57657	Repeals and replaces §§ 510.050, 510.060, 510.070, and 510.080, 1960 Code; repeals § § 510.090 and 510.100, 1960 Code, licensing and immunization of dogs (10.04)
57658	Amends § 1 of Ord. 56930, traffic control signals (Not codified)
57659	Special election (Special)
57660	Office of legislative research (3.06.260—3.06.280)
57661	Vacation of public surface rights (Special)
57662	Lease of part of unimproved public wharf (Special)
57663	Repeals and replaces § 1 of Ord. 57331, tax and water division employee salaries (4.44)
57664	Repeals and replaces Ord. 57180, sheriff's office employee salaries (4.36)
57665	Supplemental appropriation (Special)
57666	Public work improvement (Special)
57667	Repeals and replaces § 53.010, 1960 Code, recorder of deeds employee salaries (4.34)
57668	Repeals and replaces § 51.020(a) and (b), 1960 Code, parking meter division employee salaries (4.30)
57669	Repeals and replaces § 49.020, 1960 Code, treasury division employee salaries (4.26.020)
57670	Repeals and replaces § 51.010. 1960 Code, parking meter division employee salaries (4.30)
57671	Repeals and replaces § 50.010, 1960 Code, license collector employee salaries (4.28.010)
57672	Repeals and replaces § 48.010, 1960 Code. magistrate court employees and salaries (4.24)
57673	Rezone (Special)
57674	Approves development plan (Special)
57675	Rezone (Special)
57676	Approves urban renewal plan (Special)

57677	Rezone (Special)
57678	Appropriation (Special)
57679	Appropriation (Special)
57680	Repeals and replaces § 118.4.6 of Ord. 57023, building code (25.01)
57681	Grants partial tax relief (Special)
57682	Excludes payments made by city to public utilities from city gross receipts taxes (23.29.010)
57683	Public work improvement (Special)
57684	Appropriation (Special)
57685	Appropriation (Special)
57686	Appropriation (Special)
57687	Repeals and replaces § 46.010, 1960 C., salaries of board of aldermen employees (4.22.010)
57688	Zoning designation (Special)
57689	Deed conveyance (Special)
57690	Authorizes construction of public works programs (Special)
57691	Appropriation (Special)
57692	Appropriation (Special)
57693	Repeals Ord. 57486; sale of real estate (Special)
57694	Amends § 1 of Ord. 57653, parking (17.72)
57695	Installation of traffic-control signals (Not codified)
57696	Appropriations (Special)
57697	Appropriation for street resurfacing (Special)
57698	Application for funding under Housing and Community Development Act of 1977 (Special)
57699	Amends § 1 of Ord. 56027, city wards (2.12.010)
57700	Vacation of public rights-of-way (Special)
57701	Sale of real estate (Special)
57702	Zoning designation (Special)
57703	Sale of real estate (Special)
57704	Sale of real estate (Special)
57705	Sale of real estate (Special)
57706	Sale of real estate (Special)
57707	Vacation of public surface rights (Special)
57708	Vacation of public surface rights (Special)
57709	Grant agreement between city and Federal Aviation Administration (Special)
57710	Vacation of public surface rights (Special)
57711	Vacation of public surface rights (Special)
57712	Vacation of public surface rights (Special)
57713	Vacation of public surface rights (Special)
57714	Vacation of public surface rights (Special)
57715	Grant of partial tax relief (Special)
57716	Lighting of utility easements (20.52.020)
57717	Appropriations (Special)
57718	Vacation of public surface rights (Special)
57719	Appropriations (Special)
57720	Vacation of public surface rights (Special)
57721	Street closure (Special)
57722	Street closure (Special)
57723	Appropriation (Special)
57724	Curfew in Franz Park (Repealed by 58262)
57725	Appropriation (Special)
57726	Parking in Wilmore Park (Repealed by 58262)
57727	Vacation of public surface rights (Special)
57728	Vacation of public surface rights (Special)
57729	Adds § 6.15.222, 1960 C., city motor vehicle licenses (17.52.120)
57730	Repeals and replaces subsection 831.020 (1), 1960 C., truck and commercial traffic restrictions (Repealed by 57831)

57731	Vacation of public surface rights (Special)
57732	Public work improvement (Special)
57733	Arts and humanities commission (3.57)
57734	Repeals and replaces § 4 of Ord. 57409, renovation to Harry S. Truman Restorative Center (Special)
57735	Repeals and replaces §§ 50.010 and 50.030, 1960 C., salaries of license collector employees (4.28.010, 4.28.030)
57736	Public work improvements (Special)
57737	Amends § 1 of Ord. 57702, zoning designation (Special)
57738	Public work improvement (Special)
57739	Public work improvement (Special)
57740	Public work improvement (Special)
57741	Public work improvement (Special)
57742	Industrial development authority (Not codified)
57743	Public work improvement (Special)
57744	Rezone (Special)
57745	Public work improvement (Special)
57746	Public work improvement (Special)
57747	Public work improvement (Special)
57748	Public work improvement (Special)
57749	Public work improvement (Special)
57750	Public work improvement (Special)
57751	Repeals and replaces § 4 of Ord. 57339, alterations to city morgue (Special)
57752	Public work improvement (Special)
57753	Public work improvement (Special)
57754	Appropriations (Special)
57755	Industrial development of blighted areas (Special)
57756	Authorization for lease in Locust Building (Special)
57757	Appropriation (Special)
57758	Changes name of mayor's office on aging to St. Louis area agency on aging (3.36.470—3.36.480)
57759	Repeals and replaces § 892.100, 1960 C., snow emergency routes (Repealed by 57831)
57760	Lease agreement (Special)
57761	Vacation of public surface rights (Special)
57762	Adds section to Ch. 696, 1960 C., licensing of temporary help supply service businesses (Repealed by 60735)
57763	Vacation of public surface rights (Special)
57764	Street name change (Special)
57765	Vacation of public surface rights (Special)
57766	Vacation of public surface rights (Special)
57767	Vacation of public surface rights; repeals Ord. 57581 (Special)
57768	Acceptance of amendment to grant agreement (Special)
57769	Vacation of public surface rights (Special)
57770	Vacation of public surface rights (Special)
57771	Operation of motorcycles in city parks (Repealed by 58605)
57772	Rezone (Special)
57773	Rezone (Special)
57774	Vacation of public surface rights (Special)
57775	Deputies and assistants in Sheriff's office; repeals Ord. 57664 (4.36)
57776	Street closure (Special)
57777	Public work improvement (Special)
57778	Public work improvement (Special)
57779	Public work improvement (Special)
57780	Public work improvement (Special)
57781	Public work improvement (Special)
57782	Public work improvement (Special)
57783	Public work improvement (Special)
57784	Public work improvement (Special)
57785	Public work improvement (Special)
57786	Public work improvement (Special)
57787	Public work improvement (Special)
57788	Public work improvement (Special)
57789	Public work improvement (Special)

57790	Public work improvement (Special)
57791	Repeals and replaces §§ 4, 10(A), 10(C)(2), 11, 13(D) and 15 of Ord. 56091, lead poisoning control law (11.22.030, 11.22.120, 11.22.140, 11.22.150, 11.22.170, 11.22.190)
57792	Public work improvement (Special)
57793	Street improvement (Special)
57794	Public work improvement (Special)
57795	Public work improvement (Special)
57796	Public work improvement (Special)
57797	Sale of real estate (Special)
57798	Repeals and replaces § 1 of Ord. 57663, collector of revenue (Repealed by 58075)
57799	Utility agreement (Special)
57800	Utility agreement (Special)
57801	Public work improvement (Special)
57802	Repeals and replaces § 50.010, 1960 Code, license collector employees (4.28.010)
57803	Repeals and replaces § 53.010, 1960 Code, recorder of deeds employees (4.34)
57804	Repeals and replaces § 51.020, 1960 Code, parking meter employees (4.30)
57805	Repeals and replaces § 51.010, 1960 Code, parking meter employees (4.30)
57806	Repeals and replaces § 49.020, 1960 Code, treasurer's office employees (4.26.020)
57807	Public work and improvement (Special)
57808	Concession agreement at Lambert-St. Louis International Airport (Special)
57809	Vacation of public right-of-way (Special)
57810	Appropriation (Special)
57811	Lease of moorage rights (Special)
57812	Public work improvement (Special)
57813	Street closure (Special)
57814	Fee for removal of dead animals (10.16.035)
57815	Approval of property rights transfer (Special)
57816	Air rights vacation (Special)
57817	Cooperation agreement (Special)
57818	Repeals and replaces § 351.040, 1960 C., fees for weighing solid fuel (9.04.040)
57819	Vacation of public right-of-way (Special)
57820	Vacation of public right-of-way (Special)
57821	Self-insurance plan (4.12.030, 4.12.040)
57822	Community unit plan approval (Special)
57823	Repeals Ord. 57606 (Repealer)
57824	Personnel provisions (Repealed by 58054)
57825	Community unit plan approval (Special)
57826	Appropriation (Special)
57827	Public work improvement (Special)
57828	Designates historic district (Special)
57829	Industrial development plan (Special)
57830	Appropriation (Special)
57831	Traffic code; repeals Chs. 256, 820—842, 850—856, 880, 881, 883, 886—890, and 892, 1960 C., and Ords. 46687, 48833, 50955, 51363, 54443, 56144, 56849 and 57430 (17.02—17.40)
57832	Building lease (Special)
57833	Repeals and replaces § 372.250, 1960 Code, taverns (Title 14)
57834	Repeals Chs. 773, 775, 776 and §§ 372.150 and 726.100, 1960 Code (Repealer)
57835	Repeals (2), (7), and (7)(a) of § 764.020, 1960 Code (15.58.010)
57836	Repeals and replaces § 2 of Ord. 56728 (15.74.090)
57837	Appropriation (Special)
57838	Appropriation (Special)
57839	General offense and infraction (1.12.020—1.12.130)
57840	Appropriation (Special)
57841	Rezone (Special)
57842	Sale of real estate (Special)

57843	Revision of development plan (Special)
57844	Sale of real estate (Special)
57845	Redevelopment of blighted area (Special)
57846	Repeals and replaces § 149.015, 1960 Code, bonded indebtedness (5.26.020)
57847	Lease of property (Special)
57848	Repeals and replaces § 46.010, 1960 Code, board of aldermen salaries (4.22.010)
57849	Appropriation (Special)
57850	Public work improvement (Special)
57851	Repeals Ch. 479, 1960 Code (Repealer)
57852	Contract amendment (Special)
57853	Repeals and replaces § 388.140, 1960 Code, parking station (8.70.210)
57854	Vacation of public rights-of-way (Special)
57855	Public work improvement (Special)
57856	Adds §§ 113.020, 113.021, and 113.024, building code (25.01)
57857	Public work improvement (Special)
57858	Adds § 2 to Ord. 56982, urban agreement (Special)
57859	Repeals Ord. 56810 (Repealer)
57860	Vacation of public right-of-way (Special)
57861	Street name change (Special)
57862	Street name change (Special)
57863	Vacation of public right-of-way (Special)
57864	Appropriation (Special)
57865	Development of blighted area (Special)
57866	Redevelopment of blighted area (Special)
57867	Public work improvement (Special)
57868	Sale of real estate (Special)
57869	Public work improvement (Special)
57870	Appropriation (Special)
57871	Appropriation (Special)
57872	Industrial development (Special)
57873	Appropriation (Special)
57874	Deed conveyance (Special)
57875	Sale of real estate (Special)
57876	Public work improvement (Special)
57877	Public work improvement (Special)
57878	Vacation of public right-of-way (Special)
57879	Rezone (Special)
57880	Street closure (Special)
57881	Vacation of public right-of-way (Special)
57882	Development of blighted area (Special)
57883	Development plan amendment (Special)
57884	Appropriation (Special)
57885	Vacation of public right-of-way (Special)
57886	Use of Penrose Park (Repealed by 58262)
57887	Use of Sherman Park (Repealed by 58262)
57888	W.C. Handy Park (Repealed by 58262)
57889	Rezone (Special)
57890	Amends § 838.090, 1960 Code, abandoned vehicle (17.16)
57891	Adds §§ 882.037 and 882.038; amends §§ 882.040 and 882.070, 1960 Code, parking (17.56.070—17.56.090, 17.56.150)
57892	Appropriation (Special)
57893	Public work improvement (Special)
57894	Grant agreement approval (Special)
57895	Public work improvement (Special)
57896	Public work improvement (Special)
57897	Repeals Ord. 57328 (Repealer)
57898	Acquisition of real property (Special)
57899	Street closure (Special)
57900	Street closure (Special)
57901	Street closure (Special)
57902	Special election (Failed)
57903	Repeals and replaces §§ 155.010, 155.020, and 155.040, 1960 Code, gas companies (23.36.010, 23.36.040)

57904	Repeals and replaces § 152.030, 1960 Code, electrical companies (23.30.005, 23.30.030)
57905	Vacation of public right-of-way (Special)
57906	Vacation of public right-of-way (Special)
57907	Agreement with Pacific Railroad Company (Special)
57908	Appropriation (Special)
57909	Street closure (Special)
57910	Vacation of public right-of-way (Special)
57911	Street closure (Special)
57912	Vacation of public right-of-way (Special)
57913	Stop intersection (Not codified)
57914	Pedestrian mall (Special)
57915	Vacation of public right-of-way (Special)
57916	Repeals and replaces §§ 6.80.010, 6.80.013, and 6.80.032; adds § 6.80.033, 1960 Code, secondhand dealers (8.82.010, 8.82.040, 8.82.050, 8.82.051)
57917	Development plan approval (Special)
57918	Development plan amendment (Special)
57919	Development of blighted area (Special)
57920	Appropriation (Special)
57921	Development plan amendment (Special)
57922	Vacation of public right-of-way (Special)
57923	Vacation of public right-of-way (Special)
57924	Vacation of public right-of-way (Special)
57925	Vacation of public right-of-way (Special)
57926	Vacation of public right-of-way (Special)
57927	Vacation of public right-of-way (Special)
57928	Temporary street closure (Repealed by 58338)
57929	Public work improvement (Special)
57930	Lease agreement (Special)
57931	Development plan approval (Special)
57932	Street name change (Special)
57933	Port commission procedures (21.10)
57934	Lease of moorage (Special)
57935	Public improvement (Special)
57936	Public improvement (Special)
57937	Vacation of public right-of-way (Special)
57938	Public work improvement (Special)
57939	Vacation of public right-of-way (Special)
57940	Public work improvement (Special)
57941	Lease agreement (Special)
57942	Vacation of public right-of-way (Special)
57943	Transportation of radioactive material (11.15)
57944	Appropriation (Special)
57945	Development plan approval (Special)
57946	Rezone (Special)
57947	Alley closure (Special)
57948	Vacation of public right-of-way (Special)
57949	Street closure (Special)
57950	Vacation of public right-of-way (Special)
57951	Street closure (Special)
57952	Appropriation (Special)
57953	Sixth year community development board bill (Special)
57954	Vacation of public right-of-way (Special)
57955	Rezone (Special)
57956	Vacation of public right-of-way (Special)
57957	Vacation of public right-of-way (Special)
57958	Vacation of public right-of-way (Special)

57959	Repeals and replaces § 155.020, 1960 Code, gas companies (23.36.005, 23.36.020)
57960	Adds § 827.100d, 1960 Code, traffic (17.16)
57961	Public work improvement (Special)
57962	Firemen's retirement; repeals and replaces § 335.410, 1960 Code (4.18.225, 4.18.226)
57963	Street name change (Special)
57964	Use of McDonald Park (Repealed by 58262)
57965	Sale of real estate (Special)
57966	Use of Windsor Park (Repealed by 58262)
57967	Use of Hyde Park (Repealed by 58262)
57968	Public work improvement (Special)
57969	Public park naming (22.44.230)
57970	Use of Tilles Park (Repealed by 58262)
57971	Repeals and replaces §§ 59.020 and 59.030, 1960 Code, employees retirement system (Repealed by 64833)
57972	Appropriation (Special)
57973	Deferred maintenance (5.26.100—5.26.140)
57974	Obsolete districts (11.07)
57975	Rezone (Special)
57976	Public park naming (22.44.240)
57977	Acceptance of conveyance (Repealed by 58167)
57978	Repeals and replaces § 425.020, 1960 Code, bureau of vital statistics (Repealed by 62683)
57979	Repeals and replaces § 1 of Ord. 57179, sales tax (5.24.050)
57980	Repeals and replaces Ch. 510, 1960 Code, dogs (10.04)
57981	Appropriation (Special)
57982	Lease agreement (Special)
57983	Lease agreement (Special)
57984	Street closure; repeals Ord. 57645 (Special)
57985	Vacation of public right-of-way (Special)
57986	Adds Chs. 895—898, 1960 Code, heritage and urban design code; repeals Chs. 24 and 914B, 1960 Code (Title 24)
57987	Contract with the county and Southwestern Bell Telephone Company (Special)
57988	Amends § 1 of Ord. 56930, traffic signal fund (Not codified)
57989	Sale of real estate (Special)
57990	Vacation of public right-of-way (Special)
57991	Appropriation (Special)
57992	Appropriation (Special)
57993	Sale of real estate (Special)
57994	Vacation of public right-of-way (Special)
57995	Appropriation (Special)
57996	Public work improvement (Special)
57997	Repeals and reenacts §§ 547.220, 547.230, 548.120, 553.030, 553.040, 553.060, 553.070, 554.040, 555.020, 555.030 and 555.035, 1960 Code; repeals §§ 553.020 and 554.050, water rates (23.04.210—23.04.220, 23.06.130, 23.16.040)
57998	Grant agreement amendment (Special)
57999	Grant agreement amendment (Special)
58000	Public work improvement (Special)
58001	Appropriation (Special)
58002	Appropriation (Special)
58003	Appropriation (Special)
58004	Development of blighted area (Special)
58005	Public work improvement (Special)
58006	Sale of real estate (Special)
58007	Public work improvement (Special)
58008	Sale of real estate (Special)
58009	Public work improvement (Special)
58010	Appropriation (Special)
58011	Completion of Gateway Mall (Special)
58012	Public work improvement (Special)
58013	Removal of parking meter housing (17.62.060, 17.62.080—17.62.130)

58014	Repeals and replaces § 50.010, 1960 Code, license collector employees (4.28.010)
58015	Repeals and replaces § 51.010, 1960 Code, parking meter employees (Repealed by 58690)
58016	Repeals and replaces § 49.020, 1960 Code, city treasurer's employees (Repealed by 58689)
58017	Public work improvement (Special)
58018	Lease agreement (Special)
58019	Amends § 3(c) of Ord. 57535, parking meters (17.62.170)
58020	Appropriation (Special)
58021	Appropriation (Special)
58022	Repeals and replaces Ord. 57775, Sheriff's office (Repealed by 58693)
58023	Special election (Special)
58024	Amends § 1 of Ord. 56930, traffic signals (Not codified)
58025	Public work improvement (Special)
58026	Appropriation (Special)
58027	Appropriation (Special)
58028	Public work improvement (Special)
58029	Development plan approval (Special)
58030	Repeals and replaces § 53.010, 1960 Code, recorder of deeds employees (4.34.010—4.34.030)
58031	Purchase of real estate (Special)
58032	Building codes; repeals Ord. 57023 (25.01)
58033	Use permit fees for streets; repeals Ords. 57247 and 57626 (20.46)
58034	Public work improvement (Special)
58035	Use of Gravois Park (Repealed by 58262)
58036	Use of Marquette Park (Repealed by 58262)
58037	Fee for presentence investigations (3.36.310, 3.36.311)
58038	Repeals § 208.020, 1960 Code (Repealer)
58039	Use of Laclede Park (Repealed by 58262)
58040	Repeals and replaces § 18 of Ord. 50163, fuel or refuse burning permits (Ch. 11.34)
58041	Street closure (Repealed by 58325)
58042	Street closure (Special)
58043	Public work improvement (Special)
58044	Repeals and replaces § 51.020, 1960 Code, parking meter division employees (Repealed by 58691)
58045	Repeals and replaces § 548.070, 1960 Code, water service (23.06.070—23.06.076)
58046	Repeals and replaces § 307.040, 1960 Code, taxicabs (Repealed by 58795)
58047	Repeals and replaces § 306.020, 1960 Code, taxicab drivers (Repealed by 58795)
58048	Lease agreement (Special)
58049	Public work improvement (Special)
58051	Rezone (Special)
58052	Appropriation (Special)
58053	Repeals and replaces § 46.010, 1960 Code, board of aldermen employees (4.22.010)
58054	Personnel provisions; repeals Ord. 57824 (Repealed by 58159)
58055	Public work improvement (Special)
58056	Fees from vehicle towing; repeals Ords. 57358 and 57046 (Not codified)
58057	Development of blighted area (Special)
58058	Development of blighted area (Special)
58059	Development of blighted area (Special)
58060	Development of blighted area (Special)
58061	Appropriation (Special)
58062	Repeals and replaces § 903A.120, 1960 Code, zoning (Title 26)
58063	Community unit plan development project (Special)
58064	Sale of real estate (Special)
58065	Sale of real estate (Special)
58066	Community unit plan (Special)
58067	Rezone (Special)
58068	Vacation of public right-of-way (Special)

58069 Sale of real estate (Special)

58070 Repeals and replaces § 903A.020, 1960 Code, signs (Title 26)

58071 Partial tax relief continuation (Special)

58072 Redevelopment plan (Special)

58073 Repeals and replaces §§ 29.080(15), 29.240(3), 29270, and 29.310(1), 1960 Code, development procedures (11.06.080, 11.06.230, 11.06.260, 11.06.300)

58074 Vacation of public right-of-way (Special)

58075 Collector of revenue's office; repeals Ord. 57798 (Repealed by 58696)

58076 Authorization to execute agreements (Special)

58077 Development of blighted area (Special)

58078 Sale of real estate (Special)

58079 Public work improvement (Special)

58080 Repeals and replaces §§ 149.010 and 149.015, 1960 Code, property taxes (5.26.010, 5.26.020)

58081 Authorization to execute agreements (Special)

58082 Amends Art. VIII, § 8 of the charter (Charter, Art. VIII)

58083 Repeals and replaces § 14 of Ord. 58054, personnel provisions (Repealed by 58159)

58084 Appropriation (Special)

58085 Street closure (Special)

58086 Adds (2) to § 5 of Ord. 54719, vendors and peddlers (Repealed by 64569)

58087 Vacation of public right-of-way (Special)

58088 Amends Ord. 57831, stop signs (17.16)

58089 Industrial development plan approval (Special)

58090 Appropriation (Special)

58091 Public work improvement (Special)

58092 Ground lease and agreement (Special)

58093 Street name change (Special)

58094 Vacation of public right-of-way (Special)

58095 Vacation of public right-of-way (Special)

58096 Stop intersection; repeals Ord. 45260 (Not codified)

58097 Development of blighted area (Special)

58098 Repeals §§ 493.250 and 493.260, 1960 Code (Repealer)

58099 Rezone (Special)

58100 Street closure (Special)

58101 Public work improvement (Special)

58102 Vacation of public right-of-way (Special)

58103 Sixth year community development amendment board bill (Special)

58104 Vacation of public right-of-way (Special)

58105 Repeals and replaces § 1 of Div. 2 of Ord. 48338, lodging houses (Repealed by 60828)

58106 Public work improvement (Special)

58107 Industrial development plan approval (Special)

58108 Development of blighted area (Special)

58109 Redevelopment of blighted area (Special)

58110 Redevelopment plan approval (Special)

58111 Revenue bonds (Special)

58112 Vacation of public right-of-way (Special)

58113 Sale of estate (Special)

58114 Redevelopment of blighted area (Special)

58115 Vacation of surface rights (Special)

58116 Special purpose stop (Not codified)

58117 Vacation of surface rights (Special)

58118 Use of Amberg Park (Repealed by 58262)

58119 Public work improvement (Special)

58120 Public work improvement (Special)

58121 Public work improvement (Special)

58122 Public work improvement (Special)

58123 Public work improvement (Special)

58124 Public work improvement (Special)

58125 Public work improvement (Special)

58126 Appropriation (Special)

58127 Public work improvement (Special)

58128 Repeals and replaces § 7.92.010, 1960 Code, prohibitive conduct in buses and trains (Ch. 11.33)

58129 Use agreement (Special)

58130 Vacation of air rights; bridge construction (Special)

58131 Vacation of air rights (Special)

58132 Amends zoning provisions (Title 26)

58133 Use of Chair of Rocks Park (Repealed by 58262)

58134 Vacation of public surface rights (Special)

58135 Vacation of public right-of-way (Special)

58136 Acceptance of recreational complex (Special)

58137 Agreement with Missouri Highway and Transportation Commission (Special)

58138 Vacation of surface rights (Special)

58139 Public work improvement (Special)

58140 Vacation of public right-of-way (Special)

58141 Public work improvement (Special)

58142 Street closure (Repealed by 58400)

58143 Public work improvement (Special)

58144 Prohibits use of 9-1-1 from automatic alarm system (15.07)

58145 Vacation of public surface rights (Special)

58146 Vacation of public surface rights (Special)

58147 Vacation of surface rights (Special)

58148 Vacation of surface rights (Special)

58149 Vacation of surface rights (Special)

58150 Vacation of surface rights (Special)

58151 Vacation of surface rights (Special)

58152 Vacation of surface rights (Special)

58153 Lease agreement (Special)

58154 Authorization to apply for developmeat program funds (Special)

58155 Redevelopment of blighted area (Special)

58156 Appropriation (Special)

58157 Grants partial tax relief (Special)

58158 Seventh year funding under Housing and Community Development Act of 1980 (Special)

58159 Personnel regulations and compensation; repeals Ords. 58054 and 58083 (Repealed by 58678)

58160 Exempts recycling operations from provisions of Ord. 57916 (8.82.135)

58161 Public work improvement (Special)

58162 Agreement with state for public work improvements (Special)

58163 Appropriation (Special)

58164 Changes name of Armstrong Street to McKay Place (Special)

58165 Vacation of public right-of-way (Special)

58166 Vacation of surface rights (Special)

58167 Acceptance of conveyance, repeals Ord. 57977 (Special)

58168 Lease agreement (Repealed by 58869)

58169 Stop intersection (Not codified)

58170 Authorizes development of certain obsolete areas (Special)

58171 Redevelopment of blighted areas (Special)

58172 Appropriations (Special)

58173 Authorization to apply for redevelopment program funds (Special)

58174 Lambert-St. Louis Intemational Airport improvement program (Special)

58175 Sale of real estate (Special)

58176 Ratifies and accepts certain grant agreement (Special)

58177 Public work improvement (Special)

58178 Public work improvement (Special)

58179 Amends § 1 of Ord. 56444 to add § 335.295, repeal §§ 335.010, 335.230 and 335.510 and to add new §§ 335.010 and 335.510, 1960 code, firemen's retirement (4.18.010, 4.18.165, 4.18.275)

58180 Issuance of bonds (Special)

58181 Authorizes agreement with Missouri Department of Natural Resources (Special)

58182 Authorizes land clearance for redevelopment (Special)

58183 Acquisition of property for easements (Special)

58184 Vacation of surface rights (Special)

58185 Vacation of surface rights (Special)

58186 Amends § 1 of Ord. 57816, air rights vacation (Special)

58187 Rezone (Special)

58188 Rezone (Special)

58189 Vacation of surface rights (Special)

58190 Vacation of surface rights (Special)

58191 Vacation of surface rights (Special)

58192 Vacation of public right-of-way (Special)

58193 Appropriation (Special)

58194 Issuance of bonds; repeals Ord. 49581 (Special)

58195 Authorizes utility agreement (Special)

58196 Authorizes development of certain obsolete areas (Special)

58197 Approves development plan; repeals Ord. 56933 (Special)

58198 Industrial development plan approval (Special)

58199 Development of blighted area (Special)

58200 Development of blighted area (Special)

58201 Authorization to apply for development program funds (Special)

58202 Development of blighted area (Special)

58203 Redevelopment plan approval (Special)

58204 Continues partial tax relief (Special)

58205 Development of blighted area (Special)

58206 Overdimensional vehicle licensing (Ch. 17.74)

58207 Temporary street closure (Special)

58208 Repeals and replaces §§ 11.060, 11.070 and 11.080, repeals § 11.175, 1960 Code, board of aldermen (3.06.100, 4.22.010)

58209 Street improvement contract approved (Special)

58210 Sale of real estate (Repealed by 58261)

58211 Conveyance of utility easement (Special)

58212 Vacation of surface rights (Special)

58213 Changes portion of Delmar Boulevard to be Convention Plaza (Special)

58214 Lease agreement (Special)

58215 Development of blighted area (Special)

58216 Appropriation (Special)

58217 Development of blighted area (Special)

58218 Development of blighted area (Special)

58219 Development of blighted area (Special)

58220 Development of blighted area (Special)

58221 Sale of real estate (Special)

58222 Issuance of flood control project bonds (Special)

58223 Redevelopment plan approval (Special)

58224 Vacation of surface rights (Special)

58225 Lease of moorage rights (Repealed by 58871)

58226 Lease agreement (Special)

58227 Development of blighted area (Special)

58228 Development of blighted area (Special)

58229 Changes name of certain area (Special)

58230 Cooperation agreement for solid waste disposal site (Special)

58231 Sale of real estate (Special)

58232 Sale of real estate (Special)

58233 Sale of real estate (Special)

58234 Public work improvement (Special)

58235 Vacation of surface rights (Special)

58236 Vacation of surface rights (Special)

58237 Vacation of surface rights (Special)

58238 Vacation of surface rights (Special)

58239 Vacation of surface rights (Special)

58240 Vacation of surface rights (Special)

58241	Vacation of surface rights (Special)
58242	Adds § 335.355, repeals and replaces §§ 335.100, 335.330 and 335.350; repeals § 335.335, 1960 Code, firemen's retirement system (4.18.055, 4.18.207, 4.18.185, 4.18.200)
58243	Sale of real estate (Special)
58244	Industrial development plan approval (Special)
58245	Public work improvement (Special)
58246	Approves revised development plan and adds language to Ord. 54994, blighted areas, and Ord. 55321, Mill Creek North urban renewal area (Special)
58247	Development of blighted area (Special)
58248	Sale of real estate (Special)
58249	Development of blighted area (Special)
58250	Development plan approval (Special)
58251	Development of blighted area (Special)
58252	Development of blighted area (Special)
58253	Development of blighted area (Special)
58254	Designates certain alley as Carriage Lane (Special)
58255	Appropriation (Special)
58256	Public work improvements (Special)
58257	Public work improvement (Special)
58258	Development of blighted area (Special)
58259	Approves industrial development plan (Special)
58260	Temporary street closure (Repealed by 58329)
58261	Sale of real estate; repeals Ord. 58210 (Special)
58262	Curfew regulations for public parks and playgrounds; repeals Ords. 53601, 57097, 57387, 57604, 57605, 57724, 57726, 57886, 57887, 57888, 57964, 57966, 57967, 57970, 58035, 58036, 58039, 58118 and 58133 (Ch. 22.18)
58263	Amends § 1 of Ord. 57983, lease agreement (Special)
58264	Amends Ord. 53693 to repeal and replace §§ 750.010, 750.020 and 750.030, 1960 code, curfew (Ch. 15.110)
58265	Vacates easement for street purposes (Special)
58266	Railroad crossing improvement agreement (Special)
58267	Repeals and reenacts § 76.060, 1960 Code, election rules and procedures (2.08.060)
58268	Vacation of surface rights (Special)
58269	Vacation of surface rights (Special)
58270	City Center redevelopment plan approval (Special)
58271	Development of blighted area (Special)
58272	Redevelopment plan approval (Special)
58273	Street vacation (Special)
58274	Continuation of partial tax relief (Special)
58275	Distribution of code; upon code adoption, repeals 1960 Code §§ 5.010, 5.020, 5.030, 5.040 and 5.050 (Ch. 1.04)
58276	Development of blighted area (Special)
58277	Commercial development plan approval (Special)
58278	Industrial development plan approval (Special)
58279	Lambert-St. Louis International Airport public work improvements (Special)
58280	Repeals and replaces § 10 of Ord. 56868, St. Louis Convention, Exhibition and Community Center Building (Special)
58281	Quit claim deed authorized (Special)
58282	Appropriation (Special)
58283	Vacation of public right-of-way (Special)
58284	Rezone (Special)
58285	Lease agreement for Lambert-St. Louis International Airport cargo facilities (Special)
58286	Lease amendments authorized (Special)
58287	Vacation of surface rights (Special)
58288	Vacation of surface rights (Special)
58289	Development of blighted area (Special)

58290	Industrial development plan approval (Special)
58291	Redevelopment plan approval (Special)
58292	Repeals Ord. 57257, closing of Laclede Avenue (Repealer)
58293	Development plan approval (Special)
58294	Development plan approval, repeals and reenacts § 7 of Ord. 57286 (Special)
58295	Rezone (Special)
58296	Approves certain community unit plan development (Special)
58297	Sale of real estate (Special)
58298	Quit claim deed authorized (Special)
58299	Sale of real estate (Special)
58300	Amends §§ 1 and 2 of Ord. 58164, name changed to Mackay Place (Special)
58301	Conveyance of easement rights (Special)
58302	Public works improvement (Special)
58303	Public works improvement (Special)
58304	Public works improvement (Special)
58305	Public works improvement (Special)
58306	Public works improvement (Special)
58307	Amends §§ 4 and 10 of Ord. 51288, wrecker regulations (8.110.040, 8.110.220—8.110.270, 8.110.275)
58308	Public works improvement (Special)
58309	Repeals and replaces § 50.010, 1960 Code, salaries for license collector employees (Repealed by 58697)
58310	Repeals and replaces § 53.010, 1960 Code, salaries for recorder of deeds employees (4.34.010, 4.34.020, 4.34.030)
58311	Traffic control procedure at intersections with nonfunctioning signal lights (17.08.035)
58312	Redevelopment plan approval (Special)
58313	Dumping waste materials prohibited (Ch. 15.80)
58314	Rezone (Special)
58315	Vacation of surface rights (Special)
58316	Vacation of surface rights (Special)
58317	Vacation of surface rights (Special)
58318	Development of blighted area (Special)
58319	Repeals Ord. 55312, CATV franchise (Repealer)
58320	Repeals and replaces 1960 Code §§ 11.070 and 11.080, officers of the board of aldermen; repeals Ch. 46 of 1960 Code, board of aldermen employees (Repealed by 58707)
58321	Public works improvement (Special)
58322	Appropriation (Special)
58323	Appropriation (Special)
58324	Amends § 1 of Ord. 57506, appropriation (Special)
58325	Repeals Ord. 58041, street closure (Repealer)
58326	Street name change (Special)
58327	Vacation of surface rights (Special)
58328	Bond issue for airport facilities; repeals Ord. 49581 and portions of Ord. 54999 (Special)
58329	Repeals Ord. 58260, street closure (Repealer)
58330	Amends 1960 Code § 152.030, electrical company gross receipts tax (23.30.005, 23.30.030)
58331	Amends 1960 Code § 155.010, gas company gross receipts tax (23.36.010)
58332	Lease agreement (Special)
58333	Lease agreement (Special)
58334	Parking restrictions on portion of Spruce Street (Not codified)
58335	Redevelopment of blighted area (Special)
58336	Redevelopment of blighted area (Special)
58337	Authorizes agreement for astronomy outreach program (Special)
58338	Repeals Ord. 57928, temporary street closure (Repealer)
58339	Street name change (Special)
58340	Rezone (Special)
58341	Rezone (Special)
58342	Vacation of surface rights (Special)

58343	Development of blighted area (Special)
58344	Appropriations (Special)
58345	Public work improvements (Special)
58346	Amends 1960 Code § 372.080, hours of sale for intoxicating beverages (14.12.110)
58347	Authorizes contract for reconstruction of Macklind Avenue Bridge (Special)
58348	Temporary street closure (Special)
58349	Public work improvement (Special)
58350	Public work improvement (Special)
58351	Supplemental appropriation for airfield improvement program (Special)
58352	Public work improvement (Special)
58353	Concession agreement for airport merchandising (Special)
58354	Adds § 376.025 to Ch. 376 of Ord. 51376, alcoholic beverages (Title 14)
58355	Street closure (Special)
58356	Vacation of public rights-of-way (Special)
58357	Vacation of public rights-of-way (Special)
58358	Development of blighted area (Special)
58359	Development of blighted area (Special)
58360	Quit claim deed for public improvement (Special)
58361	Approves industrial area development plan (Special)
58362	Approves industrial/commercial develop-ment plan (Special)
58363	Development of blighted area (Special)
58364	Approves commercial/industrial develop-ment plan (Special)
58365	Development of blighted area (Special)
58366	Approves commercial development plan (Special)
58367	Adds subsection (D) to § 376.034, retail license application (Title 14)
58368	Development of blighted area (Special)
58369	Approves commercial development plan (Special)
58370	Approves commercial development plan (Special)
58371	Public work improvement agreement (Special)
58372	Vacation of surface rights (Special)
58373	Vacation of surface rights (Special)
58374	Lease agreement (Special)
58375	Vacation of surface rights (Special)
58376	Street name change (Special)
58377	Designates certain area as Centerre Plaza (Special)
58378	Street name change (Special)
58379	Vacation of certain property (Special)
58380	Lease agreement (Special)
58381	Vacation of surface rights (Special)
58382	Temporary street closure (Special)
58383	Empowers circuit attorney to perform additional duties (Ch. 3.17)
58384	Circuit attorney's office employee allocation and compensation (Ch. 4.48)
58385	Appropriation (Special)
58386	Authorization to apply for funds (Special)
58387	Adds 1960 Code §§ 370.160, 370.170, 376.025; repeals and replaces 372.050, 372.060, 372.080 and 376.010, alcoholic beverage sales (Title 14)
58388	Authorizes easement use agreement (Special)
58389	Rezone (Special)
58390	Sale of real estate (Special)
58391	Sale of real estate (Special)
58392	Sale of real estate (Special)
58393	Sale of real estate (Special)
58394	Sale of real estate (Special)
58395	Sale of real estate (Special)
58396	Eighth year community development funding (Special)
58397	Development of blighted areas (Special)
58398	Development of blighted area (Special)
58399	Approves revised urban renewal plan (Special)
58400	Repeals Ord. 58142, street closure (Repealer)

58401	Ratifies public works improvement agreement (Special)
58402	Vacation of surface rights (Special)
58403	Development of blighted area (Special)
58404	Lease agreement (Repealed by 58621)
58405	Approves commercial development plan (Special)
58406	Adds § 376.060, alcoholic beverage licenses at sports stadiums (Title 14)
58407	Prohibits city requirement of paved employee parking lots (Special)
58408	Lease agreement (Special)
58409	Repeals and reenacts subsection 2 of § 1 of Ord. 57982, lease agreement (Special)
58410	Amends §§ 376.022 and 376.051, 1960 Code, retail liquor licenses (Title 14)
58411	Stop intersection on Russell Boulevard designated (Special)
58412	Street opening, widening and establishment (Special)
58413	Vacation of surface rights (Special)
58414	Lease agreement (Special)
58415	Development of blighted areas (Special)
58416	Development of blighted areas (Special)
58417	Approves commercial/industrial development plan (Special)
58418	Approves industrial/commercial development plans (Special)
58419	Repeals and reenacts §§ 59.070 and 59.080, 1960 Code, employee retirement system (Repealed by 64833)
58420	Approves commercial development plan (Special)
58421	Supplemental agreement (Special)
58422	Vacation of surface rights (Special)
58423	Contract authorization (Special)
58424	Vacation of surface rights (Special)
58425	Sale of real estate (Special)
58426	Sale of real estate (Special)
58427	Sale of real estate (Special)
58428	Sale of real estate (Special)
58429	Sale of real estate (Special)
58430	Vacation of surface rights (Special)
58431	Code adoption (1.01)
58432	Contract authorization (Special)
58433	Sale of real estate (Special)
58434	Contract authorization (Special)
58435	Contract authorization (Special)
58436	Contract authorization (Special)
58437	Approves development plan (Special)
58438	Names park (Special)
58439	Authorizes application for federal funds (Special)
58440	Amends § 87.010, 1960 Code, sale of surplus property (5.60.010)
58441	Street name change (Special)
58442	Stop intersection (Special)
58443	Amends § 15.050, 1960 Code, city register (3.18.050)
58444	Amends § 16.090, 1960 Code, city journal (3.52.090)
58445	Appropriation (Special)
58446	Nonbinding preferential vote (Special)
58447	Approves commercial development plan (Special)
58448	Adds §§ 820.295, 822.020c, 823.105, 826.060 and 827.140e to Ord. 57831; amends §§ 820.280, 820.540, 823.060a, 824.050, 827.120a, 827.150d.1, 827.200a, 827.200c, 827.240 and 827.260 of Ord. 57831; traffic (17.02.300, 17.02.315, 17.02.580, 17.06.020, 17.08.060, 17.08.105, 17.10.050, 17.14.040, 17.16.120, 17.16.140, 17.16.150, 17.16.190, 17.16.230, 17.16.250)
58449	Development of blighted area (Special)
58450	Application for federal funds (Special)
58451	Approves commercial development plan (Special)
58452	Rezone (Special)
58453	Approves commercial development plan (Special)
58454	Development of blighted area (Special)
58455	Partial tax relief (Special)

58456 Development of blighted area (Special)

58457 Development of blighted area (Special)

58458 Sale of real estate (Special)

58459 Repeals and reenacts Ch. 2.12, ward boundaries (2.12.010)

58460 Airport expansion program (Special)

58461 Special business district (Special)

58462 Cable television (Repealed by 65431)

58463 Approves industrial development plan (Special)

58464 Contract authorization (Special)

58465 Development of blighted area (Special)

58466 Development of blighted area (Special)

58467 Approves development plan (Special)

58468 Approves redevelopment plan (Special)

58469 Approves industrial/commercial site development plan (Special)

58470 Repeals and reenacts § 715.170, 1960 Code, dance halls (8.32.170)

58471 Rezone (Special)

58472 Rezone (Special)

58473 Rezone (Special)

58474 Rezone (Special)

58475 Rezone (Special)

58476 Rezone (Special)

58477 Rezone (Special)

58478 Rezone (Special)

58479 Rezone (Special)

58480 Repeals Ord. 39834 (Repealer)

58481 Lease agreement (Special)

58482 Development of blighted area (Special)

58483 Development of blighted area (Special)

58484 Development of blighted area (Special)

58485 Repeals and reenacts Ch. 833, 1960 Code, street cleaning (17.28)

58486 Development of blighted area (Special)

58487 Grant agreement (Special)

58488 Development of blighted area (Special)

58489 Designates one-way street (Special)

58490 Vacates surface rights (Special)

58491 Repeals and reenacts Ch. 2.12, ward boundaries (2.12.010)

58492 Property rights transfer (Special)

58493 Airport improvement appropriation (Special)

58494 Appropriation (Special)

58495 Appropriation (Special)

58496 Appropriation (Special)

58497 Appropriation (Special)

58498 Appropriation (Special)

58499 Appropriation (Special)

58500 Appropriation (Special)

58501 Appropriation (Special)

58502 Approves industrial development site plan (Special)

58503 Approves industrial development plan (Special)

58504 Approves commercial site development plan (Special)

58505 Approves revised urban renewal plan (Special)

58506 Development of blighted area (Special)

58507 Adds § 263.055, 1960 Code, sidewalk construction (20.26.175)

58508 Repeals and reenacts § 265.120, 1960 Code, excavations (20.30.140)

58509 Repeals and reenacts § 268.030, 1960 Code, merchant sidewalk or street use (20.36.030)

58510 Street closure (Special)

58511 Amends § 15 of Ord. 37406 and § 3 of Ord. 56945, deposit of funds (Not codified)

58512 Appropriation (Special)

58513 Appropriation (Special)

58514 Repeals and reenacts § 696.365(a), 1960 Code, business license tax (Repealed by 64569)

58515 Approves addendum to development plan (Special)

58516 Development of blighted area (Special)

58517 Development of blighted area (Special)

58518 Amends subsection 3 of § 1 of Ord, 57258, street closures (Special)

58519 Lease agreement (Special)

58520 Vacates surface rights (Special)

58521 Street closure (Special)

58522 Sale of real estate; repeals Ord. 58297 (Special)

58523 Repeals and reenacts § 262.070, 1960 Code, structures overhanging streets (20.24.070)

58524 Repeals and reenacts § 262.060, 1960 Code, structures overhanging streets (20.24.060)

58525 Street vacation processing fee (20.14.090)

58526 Sale of real estate (Special)

58527 Traffic control signal (Special)

58528 Grant application (Special)

58529 Amends Ord. 57818, fees for weighing solid fuel (9.04.040)

58530 Amends § 372.190, 1960 Code, alcoholic beverages (Title 14)

58531 Approves industrial development plan (Special)

58532 Approves commercial site development plan (Special)

58533 Right-of-way vacation (Special)

58534 Trash containers in restaurants seating less than twenty persons (Repealed by 58789)

58535 Appropriation (Special)

58536 Adds to Tables 1-B and 1-E of § 1507.1 of Ord. 58032; repeals and reenacts §§ 1500.2, 1500.2.1, 1504.1, 1504.2.2, 1507.1, 1507.2, 1507.3 and 1507.6 of Ord. 58032; building codes (Repealed by 60829)

58537 Adoption of electrical code (25.04.020)

58538 Surface and subsurface rights vacation (Special)

58539 Obscenity; repeals §§ 15.30.030 and 15.32.050—15.32.150 (15.32)

58540 Amends Ords. 47038, 53693, and 58264, curfew for juveniles (15.110)

58541 Surface rights vacation (Special)

58542 Surface rights vacation (Special)

58543 Surface rights vacation (Special)

58544 Surface rights vacation (Special)

58545 Surface rights vacation (Special)

58546 Amends Ords. 51376, 58346 and 58387, hours of liquor sales (Repealed by 58756)

58547 Construction of temporary traffic diverter (Special)

58548 Development of blighted area (Special)

58549 Rights-of-way vacation (Special)

58550 Surface rights vacation (Special)

58551 Development of blighted area (Special)

58552 Redevelopment plan approval (Special)

58553 Alarm businesses (8.13)

58554 Amends § 916.010, 1960 Code, board of adjustment (Not codified)

58555 Amends § 1 and repeals paragraph 2 of p. 11 of Ord. 56768, Central West End Historic District (Special)

58556 Airport improvement project (Special)

58557 Appropriation (Special)

58558 Appropriation (Special)

58559 Beverage cans or bottles in public places (22.22)

58560 Appropriation (Special)

58561 Amends § 3 of Ord. 54923, sale of alcoholic beverages in service stations (Title 14)

58562 Railroad crossing improvement agreement (Special)

58563 Vacation of surface rights (Special)

58564 Application for federal grant (Special)

58565 Approves commercial development plan (Special)

58566 Development plan consolidation and amendment (Special)

58567 Approves commercial development plan (Special)

58568 Vacation of surface rights (Special)

58569 Rezone (Special)

58570 Repeals and reenacts Ch. 8.18, auctions and auctioneers (8.18)

58571 Development of blighted area (Special)

58572 Vacation of surface rights (Special)

58573 Repeals and reenacts § 9 of Ord. 49633, taxicabs (Repealed by 58795)

58574 Vacation of right-of-way (Special)

58575 Railroad crossing improvement agreement (Special)

58576 Vacation of surface rights (Special)

58577 Vacation of surface rights (Special)

58578 Amends § 8.02.130, business licenses (8.02.130)

58579 Development of blighted area (Special)

58580 Approves development plan amendment (Special)

58581 Rezone (Special)

58582 Amendment to community unit plan application (Special)

58583 Approval of planned residential development plan application (Special)

58584 Vacation of surface rights (Special)

58585 Rezone (Special)

58586 Appropriation (Special)

58587 Unimproved street paving (Special)

58588 Development of blighted area (Special)

58589 Rezone (Special)

58590 Parking for handicapped persons (17.76)

58591 Street improvement contract (Special)

58592 Street widening contract (Special)

58593 Amends §§ 2, 4 and 6 of Ord. 41199, soldiers memorial commission (3.56.300, 3.56.320, 3.56.340)

58594 Sale of real estate (Special)

58595 Sale of real estate (Special)

58596 Quit claim deed; repeals Ord. 58360 (Special)

58597 Repeals § 23.04.070 and adds § 23.04.070, 23.04.071, 23.04.072, 23.04.073 and 23.04.074, water pipe attachments (23.04.070, 23.04.071, 23.04.072, 23.04.073, 23.04.074)

58598 Licensing of city automobiles (4.13)

58599 Repeals and reenacts Ch. 2.12, city ward boundaries (Repealed by 62476)

58600 Establishes special business district (Special)

58601 Sale of real estate (Special)

58602 Vehicle noise (17.78)

58603 Appropriations (Special)

58604 Amends § 23.30.030, gross receipts tax on electrical companies (23.30.030)

58605 Repeals Ord. 57771 (Repealer)

58606 Paraphernalia for use with illegal drugs (11.61)

58607 Approves community unit plan development (Special)

58608 Amends § 23.36.010, gross receipts tax on gas companies (23.36.010)

58609 Authorizes acquisition of real property (Special)

58610 Adds Ch. 914D to zoning code (Not codified)

58611 Ratifies Resolution P-214 (Special)

58612 Ratifies Resolution P-215 (Special)

58613 Authorizes installation of traffic signs (Special)

58614 Sale of real estate (Special)

58615 Fuel flowage fee for aviation fuel (Special)

58616 Street vacation; repeals Ord. 51727 (Special)

58617 Amends § 2 of Ord. 57056, computerized criminal justice system (3.80.080, 3.80.090)

58618 Airport improvement (Special)

58619 Appropriation for airport improvement (Special)

58620 Amends agreement for airport improvements (Special)

58621 Lease agreement; repeals Ord. 58404 (Special)

58622 Approves development plan (Special)

58623 Approves planned residential development (Special)

58624 Rezone (Special)

58625 Development of blighted area (Special)

58626 Development of blighted area (Special)

58627 Rezone (Special)

58628 Development of blighted area (Special)

58629 Repeals Ords. 57126 and 57481 (Repealer)

58630 Development of blighted area (Special)

58631 Lease agreement (Repealed by 58851)

58632 Surface and air rights vacation (Special)

58633 Issuance of single-family mortgage revenue bonds (Special)

58634 Development of blighted area (Special)

58635 Park improvements (Special)

58636 Development of blighted area (Special)

58637 Amends § 1 of Ord. 56945, charges for use of railroad deck of Douglas MacArthur Bridge (20.06.080, 20.06.090)

58638 Airport expansion and improvement program (Special)

58639 Airport public works and improvement program (Special)

58640 Approves commercial plan (Special)

58641 Contract for bridge design (Special)

58642 Development of obsolete area (Special)

58643 Authorizes application for funds (Special)

58644 Reallocation of funds (Special)

58645 Arcades; amends §§ 8.16.010A, 8.16.030 and 8.16.100 (8.16.010, 8.16.030, 8.16.100, 8.16.105, 8.16.170, 8.16.180)

58646 Election on construction bonds (Special)

58647 Election on charter amendments to Art. I § 1(4) and Art. XIII § 14-C (Failed)

58648 Vacates surface rights (Special)

58649 Vacates surface rights (Special)

58650 Lease agreement (Special)

58651 Firemen's service retirement allowance (4.18.130)

58652 Special advisors to firemen's retirement systems (4.18.208)

58653 Vacates surface rights (Special)

58654 Contract for street improvement (Special)

58655 Establishment, opening and improvement of street (Special)

58656 Vacates rights-of-way (Special)

58657 Appropriation (Special)

58658 Appropriation (Special)

58659 Sale of real estate (Special)

58660 Contracts for airport improvements (Special)

58661 Amends Ord. 58300 to correct spelling of Mackay Street (Not codified)

58662 Wild animals (10.24)

58663 Adds § 3 and amends § 2 of Ord. 58105, hotels and rooming houses (Repealed by 60828)

58664 Adds prior code § 901.106; amends prior code §§ 901.435, 906.020, 906.030, 906.070, 906.090, 907.020, 907.070, 907.090, 908.080, 908.100 and 915.020A, zoning (Not codified)

58665 Vacates public utility easement (Special)

58666 Street closures (Special)

58667 Vacates surface rights (Special)

58668 Vacates surface rights (Special)

58669 Approves development plan (Special)

58670 Special consultants to employees' retirement system (Repealed by 64833)

58671 Contract for purchase of Digistar I interactive computer graphic star projection machine (Special)

58672 Approves development plan (Special)

58673 Development of blighted area (Special)

58674 Approves development plan (Special)

58675 Temporary street closure (Special)

58676 Approves redevelopment plan (Special)

58677 Continues partial tax relief (Special)

58678 Personnel regulations and compensation; repeals Ord. 58159 (4.10)

58679 Approves amendment to development plan (Special)

58680 Sale of real estate (Special)

58681 Parking on certain private streets; amends Ord. 57831 (17.30.020)

58682 Sale of real estate (Repealed by 58766)

58683 Sale of real estate (Special)

58684 Development of blighted area (Special)

58685 Approves industrial site plan (Special)

58686 Authorizes easement agreement (Special)

58687 Ratifies acceptance of grant agreement offer (Special)

58688 Lease agreement (Special)

58689 City treasurer's employees; repeals Ord. 58016 (4.26.020, 4.26.021, 4.26.022, 4.26.023)

58690 Parking meter division employees; repeals Ord. 58015 (4.30.010, 4.30.020, 4.30.021, 4.30.022)

58691 Parking meter violations inspectors and supervisors; repeals Ord. 58044 (4.30.030, 4.30.031, 4.30.032, 4.30.033)

58692 Repeals and replaces § 53.010, 1960 Code, salaries for recorder of deeds employees (4.34.010, 4.34.020, 4.34.030)

58693 Sheriff's office employees; repeals Ord. 58022 (4.36.010, 4.36.020, 4.36.030, 4.36.040, 4.36.045, 4.36.050, 4.36.055, 4.36.060)

58694 Amends § 4.16.195 and adds section to Ord. 57354, employees' retirement system (Repealed by 64833)

58695 Circuit attorneys' office (4.48.010, 4.48.020, 4.48.030, 4.48.040, 4.48.050)

58696 Collector of revenue's office; repeals Ord. 58075 (4.44.010, 4.44.020, 4.44.030, 4.44.040, 4.44.050, 4.44.060)

58697 License collector's employees; repeals Ord. 58309 (4.28.010)

58698 Parking of recreational motor vehicles (17.73)

58699 Amends § 372.190, 1960 Code, alcoholic beverages (Title 14)

58700 Vacates surface rights (Special)

58701 Amends § 9 of Ord. 57173, unlawful discrimination in employment (Repealed by 62710)

58702 Adds §§ 17.02.495 and 17.02.505, traffic (17.02.495, 17.02.505)

58703 Rezone (Special)

58704 Approves community unit plan development (Special)

58705 Vacates surface rights (Special)

58706 Repeals and replaces §§ 14.28.070, 14.28.090 and 14.28.091, retail licenses (Title 14)

58707 Repeals and replaces § 3.06.100, amends § 3.06.120; repeals Ords. 57208 and 58320 and §§ 3.06.170, 3.06.200 and 3.06.280, board of aldermen (3.06.100, 3.06.120)

58708 Approval of tract development (Special)

58709 Rezone (Special)

58710 Adds § 901.382, repeals and replaces § 914.020A, zoning (Not codified)

58711 Grants Mill Creek Project tax relief (Special)

58712 Sale of real estate (Special)

58713 Appropriation (Special)

58714 Sale of real estate (Special)

58715 Sale of real estate (Special)

58716 Development of blighted area (Special)

58717 Approves industrial plan (Special)

58718 HUD funding application (Special)

58719 HUD funding application (Special)

58720 Vacates public rights-of-way (Special)

58721 Vacates public rights-of-way (Special)

58722 Rezone (Special)

58723 Rezone (Special)

58724 Vacates surface rights (Special)

58725 Waiver of requirements; repeals §§ 377.020 (3), (4), (5) and (6) of Ord. 51376 (Title 14)

58726 Vacates surface rights (Special)

58727 Adds paragraph to § 12.48.020, payment at hospitals (12.48.020)

58728 Establishes Locust central business district (Special)

58729 Lease agreement (Special)

58730 Development of blighted area (Special)

58731 Approves industrial plan (Special)

58732 Approves industrial plan (Special)

58733 Appropriation (Special)

58734 Appropriation (Special)

58735 Authorization to construct fountain in park (Special)

58736 Repeals and replaces § 1507.3 of Ord. 58536, building codes (Not codified)

58737 Adds paragraph to § 3 (c) of Ord. 57535, parking meters (17.62.170)

58738 Grants easement (Special)

58739 Repeals and replaces § 2 of Ord. 55562, zoning (Not codified)

58740 Vacates public rights-of-way (Special)

58741 Amends Ord. 57121, public work improvement (Special)

58742 Repeals and replaces § 23.52.090, telephone booths (23.52.090)

58743 Appropriation (Special)

58744 Lease agreement (Special)

58745 Marriage license and dissolution fees (Ch. 5.66)

58746 Additional collector's duties (5.08.050, 5.08.060, 5.08.070)

58747 Development of blighted area (Special)

58748 Contracts for park renovations (Special)

58749 Development of blighted area (Special)

58750 Construction contract authorization (Special)

58751 Approves industrial/commercial plan (Special)

58752 Development of blighted area (Special)

58753 Approves industrial/office plan (Special)

58754 (Defeated)

58755 Election regarding fees and licenses (Special)

58756 Repeals Ord. 58546 (Repealer)

58757 Amends § 5.22.060, earnings tax (5.22.060)

58758 Changes street name (Special)

58759 Sale of real estate (Special)

58760 Sale of real estate (Special)

58761 Authorizes issuance of bonds (Special)

58762 Lease, construction, management, operation agreement (Special)

58763 Development of blighted area (Special)

58764 Approves development plan for blighted area (Special)

58765 Facility for overnight parking of recreational vehicles (17.80.010, 17.80.020, 17.80.030)

58766 Repeals and replaces Ord. 58682, sale of real estate (Special)

58767 Sale of real estate (Special)

58768 Development of blighted areas (Special)

58769 Establishes Central Riverfront Promenade Fund (Special)

58770 Opening of public road (Special)

58771 Development of blighted area (Special)

58772 Development of blighted area (Special)

58773 Approves industrial site plan (Special)

58774 Revised urban renewal plan (Special)

58775 Development of blighted area (Special)

58776 Approves industrial/commercial area extension plan (Special)

58777 Development of blighted area (Special)

58778 HUD funding application (Special)

58779 HUD funding application (Special)

58780 HUD funding application (Special)

58781 Development of blighted area (Special)

58782 Airport public works and improvement program (Special)

58783 Amends FAA grant agreement (Special)

58784 Acceptance of certain grant agreement (Special)

58785 Authorizes furnishings and equipment improvement at Chain of Rocks water treatment plant (Special)

58786 Sale of real estate (Special)

58787 Appropriation (Special)

58788 Vacates surface rights (Repealed by 58872)

58789 Repeals §§ 11.42.005—11.42.230 and §§ 11.42.275—11.42.540; adds §§ 11.42.000—11.42.208, 11.42.300—11.42.550 and 11.42.600—11.42.938 and §§ 11.43.000, 11.43.002, 11.43.100, 11.43.102 and 11.43.104, health and safety (11.42.000—11.42.208, 11.42.300—11.42.550, 11.42.600—11.42.932, 11.43.000, 11.43.002, 11.43.100, 11.43.102, 11.43.104)

58790 Approves development plan (Special)

58791 Vacates surface rights (Special)

58792 Amends Ord. 58547, construction of temporary traffic diverter (Special)

58793 Amends Ord. 58256, public work improvements (Special)

58794 Public work improvements (Special)

58795 Repeals §§ 8.98.005—8.98.535 and 8.98.690—8.98.705; adds §§ 8.98.001—8.98.536, taxicabs (8.98.001—8.98.536)

58796 Approves revised plan (Special)

58797 Execution of quitclaim deed (Special)

58798 Appropriation (Special)

58799 Approves development plan (Special)

58800 Amends Ord. 57286, development plan (Special)

58801 Development of blighted area (Special)

58802 Appropriation (Special)

58803 Approves development plan (Special)

58804 Rezone (Special)

58805 Continues partial tax relief (Special)

58806 Sale of real estate (Special)

58807 Grants easement (Special)

58808 Grants partial tax relief (Special)

58809 Repeals and replaces § 1507.7 of Ord. 58032, building code (Repealed by 60827)

58810 Street name change (Special)

58811 Temporary street closing (Special)

58812 Appropriation (Special

58813 Appropriation (Special)

58814 Authorizes lease (Special)

58815 Appropriation (Special)

58816 Vacates public rights-of-way (Special)

58817 Amends § 9 of Ord. 44740, solid waste disposal (11.02.460)

58818 Amends Ord. 56726, littering (11.18.240)

58819 Amends Ord. 56908, development plan (Special)

58820 Development of blighted areas (Special)

58821 Amends Ords. 57702 and 57737, zoning designation (Special)

58822 Vacates public rights-of-way (Repealed by 58842)

58823 Grants easement (Special)

58824 Adds § 7 to Ord. 34489, itinerant vendors (Repealed by 64569)

58825 Approves development plan (Special)

58826 Budget (Special)

58827 Area designation (Special)

58828 Amends Ord. 58678, fire department pay schedule (4.10.020)

58829 Approves industrial plan (Special)

58830 Development of blighted area (Special)

58831 Approves commercial plan (Special)

58832 Amends § 4 of Art. XXII of Charter (to be submitted to voters at next city-wide election)

58833 Sale of real estate (Special)

58834 Sale of real estate (Special)

58835 Sale of real estate (Special)

58836 Sale of real estate (Special)

58837 Sale of real estate (Special)

58838 Sale of real estate (Special)

58839 HUD funding application (Special)

58840 HUD funding application (Special)

58841 HUD funding application (Special)

58842 Vacates public rights-of-way; repeals Ord. 58822 (Special)

58843 Vacates public rights-of-way (Special)

58844 Approves commercial/industrial plan (Special)

58845 Approves revised plan (Special)

58846 Amends Ord. 58638, airport expansion and improvement program (Special)

58847	Ratifies acceptance of gift of leasehold interest (Special)
58848	Lease of mooring rights (Special
58849	HUD funding application (Special)
58850	Loan for general revenue fund (Special)
58851	Repeals and replaces Ord. 58631, lease agreement (Special)
58852	Development of blighted area (Special)
58853	Approves development plan (Special)
58854	Vacates surface rights (Special)
58855	Stop sign establishment and removal (Special)
58856	Stop sign establishment and removal (Special)
58857	Permanent street closing (Special)
58858	Naming of community health center (Special)
58859	Designates stop intersection (Special)
58860	Designates stop intersection (Special)
58861	Convention center and auditorium commission; repeals §§ 1, 2, 3, 4, 5, 7 and 8 of Ord. 40145 and §§ 2, 3, 4 and 6 of Ord. 56938, and Ord. 57311 (3.62)
58862	Authorizes lease (Special)
58863	Sale of real estate (Special)
58864	Amends Ord. 58256, public works improvement (Special)
58865	Sale of real estate (Special)
58866	Public street improvement (Special)
58867	Development of blighted areas (Special)
58868	Approves development plan (Special)
58869	Lease agreement; repeals Ord. 58168 (Special)
58870	Lease agreement (Special)
58871	Lease agreement; repeals Ord. 58225 (Special)
58872	Vacates surface rights; repeals Ord. 58788 (Special)
58873	Sale of real estate (Special)
58874	Vacates surface rights (Special)
58875	Sale of real estate (Special)
58876	Vacates surface rights (Special)
58877	Vacates public rights-of-way (Special)
58878	Street closure (Special)
58879	Appropriation (Special)
58880	Tax relief (Special)
58881	Repeals and replaces § 17.76.020, parking for handicapped persons (17.76.020)
58882	Parking spaces for handicapped persons (17.77.010, 17.77.020, 17.77.030)
58883	Amends Ord. 57116, withholding earnings tax (5.22.060)
58884	Sale of real estate (Special)
58885	Installation of traffic signals (Special)
58886	Sale of real estate (Special)
58887	Sale of real estate (Special)
58888	Sale of real estate (Special)
58889	Sale of real estate (Special)
58890	Sale of real estate (Special)
58891	Sale of real estate (Special)
58892	Sale of real estate (Special)
58893	Sale of real estate (Special)
58894	Street improvement fund; repeals Ord. 56000 (5.50.010, 5.50.020, 5.50.030, 5.50.040, 5.50.050)
58895	Amends airport use agreement (Special)
58896	Grants easement (Special)
58897	Vacates surface rights (Special)
58898	Vacates surface rights (Special)
58899	Amends Ord. 58762, lease agreement (Special)
58900	Additional vehicle licensing requirements (17.53)
58901	Lease agreement (Special)
58902	Vacates surface rights (Special)
58903	Establishes Baden Market Centre special business district (Not codified)
58904	Development of blighted areas (Special)
58905	Sale of real estate (Special)
58906	Development of blighted area (Special)
58907	Development of blighted area (Special)

58908	Development of blighted area (Special)
58909	Development of blighted area (Special)
58910	Development of blighted area (Special)
58911	Development of blighted area (Special)
58912	Development of blighted area (Special)
58913	Development of blighted area (Special)
58914	Development of blighted area (Special)
58915	Development of blighted area (Special)
58916	Development of blighted area (Special)
58917	Development of blighted area (Special)
58918	Development of blighted area (Special)
58919	Approves commercial plan (Special)
58920	Approves development plan (Special)
58921	Approves amendment to FAA grant agreement (Special)
58922	Amends lease agreement (Special)
58923	Expansion and improvement program (Special)
58924	Public works and improvement programs (Special)
58925	Public works and improvement program (Special)
58926	Appropriation (Special)
58927	HUD funding application (Special)
58928	Sale of real estate (Special)
58929	Vacates public rights-of-way (Special)
58930	Approves development plan (Special)
58931	Development of blighted area (Special)
58932	Development of blighted area (Special)
58933	Development of blighted area (Special)
58934	Approves development plan (Special)
58935	Vacates surface rights (Special)
58936	Vacates surface rights (Special)
58937	Appropriation (Special)
58938	Exempts area from certain state law (Special)
58939	Street closure (Special)
58940	Lease agreement (Special)
58941	Adopts amendment to FAA grant agreement (Special)
58942	Vacates surface rights (Repealed by 59284)
58943	Street improvement (Special)
58944	Continues partial tax relief (Special)
58945	Development of blighted area (Special)
58946	Development of blighted area (Special)
58947	Development of blighted area (Special)
58948	Approves development plan (Special)
58949	Approves development plan (Special)
58950	Development of blighted area (Special)
58951	Sale of real estate (Special)
58952	Sale of real estate (Special)
58953	Sale of real estate (Special)
58954	HUD funding application (Special)
58955	Development of blighted area (Special)
58956	Approves commercial site plan (Special)
58957	Development of blighted area (Special)
58958	Approves commercial plan (Special)
58959	Sale of real estate (Special)
58960	Development of blighted area (Special)
58961	Approves commercial plan (Special)
58962	Vacates surface rights (Special)
58963	Vacates surface rights (Special)
58964	Amends Ord. 57588 development plan (Not codified)
58965	Appropriation (Special)
58966	Appropriation (Special)
58967	Sale of real estate (Special)
58968	Sale of real estate (Special)
58969	Sale of real estate (Special)
58970	Additional compensation to certain county officers (4.52)
58971	HUD funding application (Special)
58972	Appropriation (Special)
58973	Approves development plan (Special)
58974	Approves development plan (Special)
58975	Improvement funding (Special)
58976	Amends § 23.30.030, electrical companies gross receipts tax (23.30.030)
58977	Amends § 23.36.010, gas company gross receipts tax (23.36.010)
58978	Development of blighted area (Special)

58979	Development of blighted area (Special)
58980	Development of blighted area (Special)
58981	Development of blighted area (Special)
58982	Extends and amends provisions of Ord. 56576, lease agreement (Special)
58983	Appropriation (Special)
58984	Establishes special business district (Not codified)
58985	Approves development plan (Special)
58986	Approves development plan (Special)
58987	Approves development plan (Special)
58988	HUD funding application (Special)
58989	HUD funding application (Special)
58990	Approves development plan (Special)
58991	Names area (Special)
58992	Appropriation (Special)
58993	Park repair and reconstruction (Special)
58994	Development of blighted area (Special)
58995	Approves development plan (Special)
58996	Sale of intoxicating liquor at amusement places (Title 14)
58997	Property conveyance and lease agreement (Special)
58998	Sale of real estate (Special)
58999	Appropriation (Special)
59000	Sale of real estate (Special)
59001	Appropriation (Special)
59002	Establishes Kingsway Center special business district (Not codified)
59003	Appropriation (Special)
59004	Approves development plan (Special)
59005	Easement agreement (Special)
59006	Adopts amendment to FAA grant agreement (Special)
59007	Adopts grant agreement (Special)
59008	Quit claim deed (Special)
59009	Easement agreement (Special)
59010	Development of blighted area (Special)
59011	Development of blighted area (Special)
59012	Development of blighted area (Special)
59013	Development of blighted area (Special)
59014	Development of blighted area (Special)
59015	Approves development plan (Special)
59016	Approves industrial/commercial plan (Special)
59017	Approves development plan (Special)
59018	Amends §§ 4.18.055, 4.18.125, 4.18.130, 4.18.150, 4.18.155, 4.18.180, 4.18.185, 4.18.207 and 4.18.310; repeals and replaces § 4.18.165, firemen's retirement system (4.18.055, 4.18.125, 4.18.130, 4.18.150, 4.18.155, 4.18.165, 4.18.180, 4.18.185, 4.18.207, 4.18.310)
59019	Amends § 14.12.090, alcoholic beverages (Title 14)
59020	Street closure (Special)
59021	Temporary street closure (Special)
59022	Adds § 3(5) to Ord. 58387, retail alcoholic beverage licenses (Title 14)
59023	Vacates surface rights (Special)
59024	Vacates surface rights (Special)
59025	Lighting system contract (Special)
59026	Vacates and abolishes right-of-way (Special)
59027	Equipment services division to board of public service department of president (3.29)
59028	Repeals and replaces §§ 4 and 5 of Ord. 57973, deferred maintenance improvements (5.26.130, 5.26.140, 5.26.150)
59029	Development of obsolete area (Special)
59030	Commission on heritage and urban design of demolition permits (Title 24)
59031	Development of blighted area (Special)
59032	Appropriation (Special)
59033	Amends § 1 of Ord. 58660; supplemental appropriation (Special)
59034	Vacates surface rights (Special)
59035	Street closure (Special)
59036	Approves development plan (Special)
59037	Approves development plan (Special)
59038	Amends Ord. 57688, zoning designation (Special)
59039	Sale of real estate (Special)
59040	Easement agreement (Special)

59041 Sale of real estate (Special)
59042 Repeals and replaces § 9 of Ord. 58197, development plan (Special)
59043 Street closure (Special)
59044 Supplemental appropriation (Special)
59045 Amends Ord. 58270, development plan (Special)
59046 Early service retirement (Repealed by 64833)
59047 Vacates surface rights (Special)
59048 Development of blighted area (Special)
59049 Development of blighted area (Special)
59050 Rezone (Special)
59051 Rezone (Special)
59052 Rezone (Special)
59053 Development of blighted area (Special)
59054 Temporary street closure (Special)
59055 Rezone (Special)
59056 Temporary street closure (Special)
59057 Temporary street closure (Special)
59058 Temporary traffic diversion (Special)
59059 Temporary street closure (Special)
59060 Temporary street closure (Special)
59061 Temporary street closure (Special)
59062 Vacates surface rights (Special)
59063 Development of blighted area (Special)
59064 Approves industrial/commercial plan (Special)
59065 Traffic signal installation (Special)
59066 Development of blighted area (Special)
59067 Development of blighted area (Special)
59068 Development of blighted area (Special)
59069 Adds § 17.76.025; amends § 17.76.020; repeals § 2 of Ord. 58882, handicapped parking (17.76.020, 17.76.025)
59070 Sale of real estate (Special)
59071 Repeals and replaces § 4 of Ord. 57321, public improvement (Special)
59072 Appropriation (Special)
59073 Authorizes revenue anticipation notes (Repealed by 59209)
59074 Development of blighted area (Special)
59075 Development of blighted area (Special)
59076 Development of blighted area (Special)
59077 Development of blighted area (Special)
59078 Development of blighted area (Special)
59079 Development of blighted area (Special)
59080 Development of blighted area (Special)
59081 Development of blighted area (Special)
59082 Development of blighted area (Special)
59083 Development of blighted area (Special)
59084 Development of blighted area (Special)
59085 Development of blighted area (Special)
59086 Development of blighted area (Special)
59087 Development of blighted area (Special)
59088 Development of blighted area (Special)
59089 Temporary street closure (Special)
59090 Amends § 2 of Ord. 58514, business license tax (Repealed by 64569)
59091 Vacates and abolishes rights-of-way (Special)
59092 Vacates and abolishes rights-of-way (Special)
59093 Vacates and abolishes rights-of-way (Special)
59094 Adopts amendment to FAA grant agreement (Special)
59095 Development of blighted area (Special)
59096 Approves commercial development plan (Special)
59097 Development of blighted area (Special)
59098 Approves commercial plan (Special)
59099 Development of blighted area (Special)
59100 Approves commercial development plan (Special)
59101 Approves development plan (Special)
59102 Vacates air rights (Special)
59103 Vacates air rights (Special)
59104 Vacates air rights (Special)
59105 Vacates and abolishes easement (Special)
59106 Approves development plan (Special)
59107 Street and sidewalk improvements (Special)

59108 Street improvements (Special)

59109 Vacates surface rights (Special)

59110 Vacates surface rights (Special)

59111 Vacates surface rights (Special)

59112 Special employers' fee and tax (5.68.010, 5.68.020, 5.68.030, 5.68.040, 5.68.050, 5.68.060, 5.68.070, 5.68.120)

59113 Temporary street closure (Special)

59114 Temporary street closure; two-way street (Special)

59115 Temporary street closure (Special)

59116 Street closure (Special)

59117 Rezone (Special)

59118 Signage system contract (Special)

59119 Sale of real estate (Special)

59120 Appropriation (Special)

59121 Solid waste disposal; repeals Ords. 44740, 48149, §§ 1, 2, 3, 4A, 5—12, 14—17 of Ord. 55877, Ords. 56909, 56917 and §§ 11.02.370—11.02.400 (11.02.005, 11.02.010, 11.02.015, 11.02.020, 11.02.025, 11.02.030, 11.02.035, 11.02.040, 11.02.045, 11.02.050, 11.02.055, 11.02.060, 11.02.065, 11.02.070, 11.02.075, 11.02.080, 11.02.085, 11.02.090, 11.02.095, 11.02.100, 11.02.105, 11.02.110, 11.02.115, 11.02.120, 11.02.125, 11.02.130, 11.02.135, 11.02.140, 11.02.145, 11.02.150, 11.02.155, 11.02.160, 11.02.165, 11.02.170, 11.02.175, 11.02.180, 11.02.185, 11.02.190, 11.02.195, 11.02.200, 11.02.205, 11.02.210, 11.02.215, 11.02.220, 11.02.225, 11.02.230, 11.02.235, 11.02.240, 11.02.245, 11.02.250, 11.02.255, 11.02.260, 11.02.265, 11.02.270, 11.02.275, 11.02.315, 11.02.320, 11.02.330, 11.02.340, 11.02.350, 11.02.355, 11.02.360, 11.02.365, 11.02.370, 11.02.375, 11.02.380)

59122 Amends § 1 of Ordinance 58866, street improvements (Special)

59123 Child protection in motor vehicles (17.82)

59124 Development of blighted areas (Special)

59125 Approves development plan (Special)

59126 Repeals and replaces § 5.26.020, property tax (5.26.020)

59127 Street closure (Special)

59128 Approves development plan (Special)

59129 Approves development plan (Special)

59130 Approves development plan (Special)

59131 Traffic signal contract (Special)

59132 Approves development plan (Special)

59133 Temporary street closure (Special)

59134 Temporary traffic diverter (Special)

59135 Personnel regulations and compensation; repeals Ords. 58678 and 58828 (4.10)

59136 Development of blighted area (Special)

59137 Approves commercial plan (Special)

59138 HUD funding application (Special)

59139 Development of blighted area (Special)

59140 Approves commercial plan (Special)

59141 Approves development plan (Special)

59142 Approves development plan; amends Ord. 56811 (Special)

59143 Development of blighted area (Special)

59144 Development of blighted area (Special)

59145 Development of blighted area (Special)

59146 Development of blighted area (Special)

59147 Development of blighted area (Special)

59148 Development of blighted areas (Special)

59149 Development of blighted area (Special)

59150 Development of blighted area (Special)

59151 Agreement with Missouri Pacific Railroad Company; amends § 1 of Ord. 58637 bridge charges (20.06.080, 20.06.090)

59152 Sheriff's office employees; repeals Ord. 58693 (4.36)

59153 Repeals and replaces § 53.010, 1960 Code, recorder of deeds employees (4.34.010, 4.34.020, 4.34.030)

59154 City treasurer's employees; repeals Ord. 58689 (4.26.020, 4.26.021, 4.26.022, 4.26.023)

59155 Parking meter violations inspectors and supervisors; repeals Ord. 58691 (4.30.030, 4.30.031, 4.30.032, 4.30.033)

59156 Parking meter division employees; repeals Ord. 58690 (4.30.010, 4.30.020, 4.30.021, 4.30.022)

59157 Collector of revenue's office; repeals Ord. 58075 (4.44.010, 4.44.020, 4.44.030, 4.44.040, 4.44.050, 4.44.060)

59158 License collector's employees; repeals Ord. 58697 (4.28.010)

59159 Circuit attorney's office (4.48.010, 4.48.020, 4.48.030, 4.48.040, 4.48.050)

59160 Development of blighted area (Special)

59161 Development of blighted area (Special)

59162 Development of blighted area (Special)

59163 Development of blighted area (Special)

59164 Development of blighted area (Special)

59165 Development of blighted area (Special)

59166 Development of blighted area (Special)

59167 Development of blighted area (Special)

59168 Development of blighted area (Special)

59169 Development of blighted area (Special)

59170 Development of blighted area (Special)

59171 Development of blighted area (Special)

59172 Earnings tax; repeals § 1 of Ord. 50624 (5.22.070)

59173 Development of blighted area (Special)

59174 Development of blighted area (Special)

59175 Development of blighted area (Special)

59176 Development of blighted area (Special)

59177 Development of blighted area (Special)

59178 Beverage bottles in parks (22.23)

59179 Development of blighted area (Special)

59180 Development of blighted area (Special)

59181 Development of blighted area (Special)

59182 Development of blighted area (Special)

59183 Development of blighted area (Special)

59184 Development of blighted area (Special)

59185 Rezone (Special)

59186 Rezone (Special)

59187 Sale of real estate (Special)

59188 Vacates surface rights (Special)

59189 Vacates surface rights (Special)

59190 Vacates surface rights (Special)

59191 Sale of real estate (Special)

59192 Washington Tabernacle Baptist Church landmark designation (Special)

59193 Vacates surface rights (Special)

59194 Sale of real estate (Special)

59195 Approves development plan (Special)

59196 Easement deed (Special)

59197 Cable television franchise (Repealed by 65430)

59198 Lease agreement (Special)

59199 Rezone (Special)

59200 Lease agreement (Special)

59201 Traffic signal installation (Special)

59202 Traffic signal installation (Special)

59203 Vacates surface rights (Special)

59204 Stealing; repeals Ords. 11668, 11971 and 12423 (15.60)

59205 Street name change (Special)

59206 Appropriations for bonded indebtedness (Special)

59207 Repeals and replaces §§ 1 and 6 of Ord. 59112; special employer's fee and tax (5.68.010, 5.68.020, 5.68.030)

59208 Street name change (Special)

59209 Revenue anticipation notes; repeals Ord. 59073 (Special)

59210 Approves development plan (Special)

59211 Appropriates funds for domestic violence service (Special)

59212 Development of blighted area (Special)

59213 Development of blighted area (Special)

59214 Temporary street closure (Special)

59215 Vacates surface rights (Special)

59216 Approves development plan (Special)

59217 Appropriation (Special)

59218 Development of blighted area (Special)

59219 Appropriation (Special)

59220 Renames street (Special)

59221 Repeals and replaces §§ 6 and 9 and repeals §§ 7 and 8 of Ord. 59112, special employees' fee and tax (5.68.030, 5.68.040)

59222 Pawnbroker license issuance restriction (8.72.160)

59223 Development of blighted area (Special)

59224 Approves development plan (Special)

59225 Tax relief (Special)

59226 Sale of real estate (Special)

59227 Authorizes redevelopment and renovation (Special)

59228 Sale of real estate (Special)

59229 Approves development plan (Special)

59230 Tax relief (Special)

59231 Street closure (Special)

59232 Lambert-St. Louis International Airport improvement program (Special)

59233 Amends Ord. 57737, zoning designation (Special)

59234 Development of blighted area (Special)

59235 Development of blighted area (Special)

59236 Stop intersection designation and sign removal (Special)

59237 Development of blighted area (Special)

59238 Amends Ord. 58072, redevelopment plan (Special)

59239 Vacates surface rights (Special)

59240 Repeals and replaces § 21.36.010 port authority commission (21.36.010)

59241 Repeals and replaces § 3.48.100, community development (3.48)

59242 Repeals and replaces § 18.08.030, airport authority (18.08.030)

59243 Names city block (Special)

59244 Renames street (Special)

59245 Ratifies acceptance of grant agreement (Special)

59246 Appropriation (Special)

59247 Tax proposition (Special)

59248 Amends Ord. 58728, Locust central business district (Special)

59249 Vacates public right-of-way (Special)

59250 Vacates surface rights (Special)

59251 Amends Ord. 59112, special employers' fee and tax (5.68.050, 5.68.060, 5.68.070, 5.68.080, 5.68.090, 5.68.100, 5.68.110, 5.68.120, 5.68.130)

59252 Easement agreement (Special)

59253 Vacates surface rights (Special)

59254 Stop intersection designation (Special)

59255 Stop intersection designation (Special)

59256 Vacates surface rights (Special)

59257 Sunday liquor sale at places of entertainment (Title 14)

59258 Amendment to development plan (Repealed by 60498)

59259 Development of blighted area (Special)

59260 Approves development plan (Special)

59261 Vacates air rights (Special)

59262 Development of blighted area (Special)

59263 Development of blighted area (Special)

59264 Development of blighted area (Special)

59265 Approves commercial site commercial plan (Special)

59266 Appropriation (Special)

59267 Dog waste removal (Repealed by 65206)

59268 Vacates surface and subsurface rights (Special)

59269 Hazardous substances site (11.64)

59270 Air pollution control; repeals Ords. 41173, 41586, 42111, 45229 and 54699 (Ch. 11.34)

59271 Development of blighted area (Special)

59272 Approves development plan (Special)

59273 Amends §§ 3, 5 and 7 of Ord. 57505, frozen dessert sanitation (11.51.210, 11.51.230, 11.51.250)

59274 Sale of real estate (Special)

59275 Vacates subsurface rights (Special)

59276 Authorizes construction of traffic control signals (Special)

59277 Vacates right-of-way (Special)

59278 Sale of real estate (Special)

59279 Repeals and replaces §§ 4.16.460 and 4.16.465, city employee retirement system (Repealed by 64833)

59280 Amends Ord. 59108, street improvements (Special)

59281 Vacates surface rights (Special)

59282 Amends Ord. 59034, surface rights vacation (Special)

59283 Sewer system easement (Special)

59284 Vacates surface rights; repeals Ord. 58942 (Special)

59285 Stop intersection designation (Special)

59286 Revenue bond issuance (Special)

59287 Repair of Douglas MacArthur Bridge (Special)

59288 Authorizes funding application (Special)

59289 Development of blighted area (Special)

59290 Development of blighted area (Special)

59291 Approves commercial plan (Special)

59292 Development of blighted area (Special)

59293 Repairs to Compton Hill Reservoir (Special)

59294 Approves development plan (Special)

59295 Approves development plan (Repealed by 64524)

59296 Approves development plan (Special)

59297 Approves development plan (Special)

59298 Approves development plan (Special)

59299 Vacates surface rights (Special)

59300 Vacates right-of-way (Special)

59301 Vacates surface rights (Special)

59302 Stop sign establishment (Special)

59303 Parking restrictions (Not codified)

59304 Vacates surface rights (Special)

59305 Circuit attorney duties and compensation (3.17)

59306 Vacates surface rights (Special)

59307 Sale of real estate (Special)

59308 Development of blighted area (Special)

59309 Development of blighted area (Special)

59310 Sale of real estate (Special)

59311 Development of blighted area (Special)

59312 Development of blighted area (Special)

59313 Amends Ord. 59141, development of blighted area (Special)

59314 Amends Ord. 59132, development plan approval (Special)

59315 Authorizes application for HUD funds (Special)

59316 Approves development plan (Special)

59317 Development of blighted area (Special)

59318 Approves industrial site plan (Special)

59319 Declares Memorial Home a landmark (Special)

59320 Development of blighted area (Special)

59321 Easement deed (Special)

59322 Amends §§ 905.020, 906.020, 906.040, 906.090, 907.020, 907.040, 907.090 and 909.040, zoning (Not codified)

59323 Development of blighted area (Special)

59324 Sale of real estate (Special)

59325 Development of blighted area (Special)

59326 Development of blighted area (Special)

59327 Approves commercial area plan (Special)

59328 Lease agreement; repeals Ord. 57045 (Special)

59329 Authorizes mooring lease agreement (Special)

59330 Amendment to indenture of fuel service lease (Special)

59331 Submits proposition to vote (Special)

59332 Renames avenue (Special)

59333 Temporary street closure (Special)

59334 Establishes public work and improvement program (Special)

59335 Amends Ord. 58794, public improvements (Special)

59336 Establishes public work and improvement program (Special)

59337 Ratifies acceptance of grant agreement (Special)

59338 Approves revised project plan (Special)
59339 Grants ground lease (Special)
59340 Authorizes quit claim deed (Special)
59341 Establishes improvement program (Special)
59342 Appropriation (Special)
59343 Sale of real estate (Special)
59344 Development of blighted area (Special)
59345 Repeals Ords. 42217, 44622 and 55004 (Repealer)
59346 Sale of real estate (Special)
59347 Lease agreement (Special)
59348 Sale of real estate (Special)
59349 Amends § 8.23.060a of § 1 of Ord. 59349, traffic (17.08.060)
59350 Authorizes lease agreement (Special)
59351 Tax relief (Special)
59352 Vacates surface rights (Special)
59353 Bond election (Special)
59354 Submits amendment to § 4 of Art. XXII of Charter to vote (Charter, Art. XXII)
59355 Development of blighted area (Special)
59356 Vacates surface rights (Special)
59357 Approves development plan (Special)
59358 Vacates surface rights (Special)
59359 Sale of real estate (Special)
59360 Sale of real estate (Special)
59361 Approves development plan (Special)
59362 Development of blighted area (Special)
59363 Surcharge for leak repair to water pipe; amends § 23.04.070, submits surcharge to election (23.04.070, 23.04.075—23.04.079.5)
59364 Vacates rights-of-way (Special)
59365 Equipment purchase authorization and appropriation (Special)
59366 Approves development plan (Special)
59367 Establishes improvement program (Special)
59368 Amends § 895.40 of Ord. 57986, heritage and urban design (Title 24)
59369 Appropriation (Special)
59370 Authorizes lease agreement (Special)
59371 Stop intersection designation (Special)
59372 Development of blighted area (Special)
59373 Repeals and replaces § 14.04.130, alcoholic beverages (Title 14)
59374 Temporary street closure (Special)
59375 Temporary street closure (Special)
59376 Smoke detectors (25.52)
59377 Authorizes bridge reconstruction (Special)
59378 Sale of real estate (Special)
59379 Vacates surface rights (Special)
59380 Temporary street closure (Special)
59381 Development to blighted area (Special)
59382 Vacates surface rights (Special)
59383 Vacates surface rights (Special)
59384 Approves development plan (Special)
59385 Approves development plan (Special)
59386 Approves development plan (Special)
59387 Approves development plan (Special)
59388 Development of blighted area (Special)
59389 Approves development plan (Special)
59390 Appropriation (Special)
59391 Street and sidewalk construction (Special)
59392 Development of blighted area (Special)
59393 Development of obsolete area (Special)
59394 Amends Ord. 56908, development plan (Special)
59395 Development of blighted area (Special)
59396 Vacates surface rights (Special)
59397 Appropriation (Special)
59398 Street closure (Special)
59399 Appropriation (Special)
59400 Designation of historic district (Special)
59401 Amends Ord. 57702, historic district (Special)
59402 Beverage cans or bottles in public places; repeals Ord. 58559 (22.22)
59403 Sale of real estate (Special)

59404 Sale of real estate (Special)

59405 Approves development plan (Special)

59406 Authorizes lease agreement (Special)

59407 Approves development plan (Special)

59408 Vacates surface rights (Special)

59409 Vacates surface rights (Special)

59410 Vacates rights-of-way (Repealed by 60493)

59411 Development of blighted area (Special)

59412 Development of blighted area (Special)

59413 Development of blighted area (Special)

59414 Development of blighted area (Special)

59415 Development of blighted area (Special)

59416 Development of blighted area (Special)

59417 Development of blighted area (Special)

59418 Development of blighted area (Special)

59419 Development of blighted area (Special)

59420 Development of blighted area (Special)

59421 Development of blighted area (Special)

59422 Development of blighted area (Special)

59423 Approves development plan (Special)

59424 Development of blighted area (Special)

59425 Development of blighted area (Special)

59426 Development of blighted area (Special)

59427 Authorizes quit claim deed (Special)

59428 Rezone (Special)

59429 Brick dealers (8.28A)

59430 Vacates right-of-way (Special)

59431 Development of blighted area (Special)

59432 Approves commercial site commercial plan (Special)

59433 Development of blighted area (Special)

59434 Approves development plan (Special)

59435 Development of blighted area (Special)

59436 Approves development plan (Special)

59437 Authorizes lease agreement (Repealed by 64274)

59438 Vacates surface rights (Special)

59439 Vacates surface rights (Special)

59440 Renames avenue (Special)

59441 Repeals and replaces §§ 1 and 2 of Ord. 57971 and § 4.16.225, city employee retirement system (Repealed by 64833)

59442 Creates historic district (Special)

59443 Development of blighted area (Special)

59444 Development of blighted area (Special)

59445 Development of blighted area (Special)

59446 Budget (Special)

59447 Appropriation (Special)

59448 Appropriation (Special)

59449 Declares result of bond election (Special)

59450 Bond issuance (Special)

59451 Authorizes revenue anticipation notes (Special)

59452 Tax relief (Special)

59453 Sale of real property (Special)

59454 Street merchants and performers (Repealed by 64569)

59455 Repeals and replaces §§ 2 and 5 of Ord. 57973, property tax (5.26.110, 5.26.130)

59456 Appropriation (Special)

59457 Approves development plan (Special)

59458 Designates park (Special)

59459 Approves development plan (Special)

59460 Approves development plan (Special)

59461 Approves development plan (Special)

59462 Approves development plan (Special)

59463 Approves development plan (Special)

59464 Rezone (Special)

59465 Sale of real estate (Special)

59466 Sale of real estate (Special)

59467 Parking meter employee division employees; repeals Ord. 59155 (4.30.030, 4.30.032, 4.30.033)

59468 Parking meter division employees salaries; repeals Ord. 59156 (Repealed by 59942)

59469 Sale of real estate (Special)

59470 Development of blighted area (Special)

59471 Approves commercial development plan (Special)

59472 Sale of real estate (Special)

59473 Repeals and replaces § 3 of Ord. 58882, space requirements for handicapped parking (17.77.030)

59474 Approves development plan (Special)

59475 Vacates street; repeals Ord. 49994 (Special)

59476 Vacates surface rights (Special)

59477 Vacates surface rights (Special)

59478 Vacates surface rights (Special)

59479 Vacates surface rights (Special)

59480 Amends Ord. 59451, revenue anticipation notes (Special)

59481 Open storage of sand and gravel (11.66)

59482 Approves easement and agreement (Special)

59483 Development of blighted area (Special)

59484 Development of blighted area (Special)

59485 Approves development plan (Special)

59486 Early service retirement for city employees (Repealed by 64833)

59487 Sick leave use for layoff (Repealed by 64833)

59488 Development of blighted area (Special)

59489 Approves development plan (Special)

59490 Ratifies acceptance of grant agreement (Special)

59491 Establishes improvement program (Special)

59492 Lease agreement (Special)

59493 Establishes improvement program (Special)

59494 Establishes improvement program (Special)

59495 Establishes improvement program (Special)

59496 Establishes improvement program (Special)

59497 Appropriation (Special)

59498 Appropriation (Special)

59499 Establishes improvement program (Special)

59500 Appropriation (Special)

59501 Establishes improvement program (Special)

59502 Development of blighted area (Special)

59503 Development of blighted area (Special)

59504 Lease agreement (Special)

59505 Development of blighted area (Special)

59506 Development of blighted area (Special)

59507 Development of blighted area (Special)

59508 Development of blighted area (Special)

50509 Development of blighted area (Special)

59510 Development of blighted area (Special)

59511 Development of blighted area (Special)

59512 Development of blighted area (Special)

59513 Board of aldermen; amends §§ 306.100 and 306.120; repeals Ord. 58707 (3.06.100, 3.06.120, 3.06.280, 3.06.290, 3.06.300, 3.06.310, 4.22.010)

59514 Easement agreement (Special)

59515 Approves development plan (Special)

59516 Liquor sales for common eating area (Title 14)

59517 Amends §§ 14.28.040, 14.28.150 and 14.28.170, alcoholic beverage retail sales (Title 14)

59518 Development of blighted area (Special)

59519 Development of blighted area (Special)

59520 Development of blighted area (Special)

59521 Development of blighted area (Special)

59522 Vacates surface rights (Special)

59523 Vacates right-of-way (Special)

59524 Water rates; repeals §§ 23.16.040, 23.16.050, 23.16.070, 23.16.080, 23.18.070, 23.20.020, 23.20.030 and 23.20.040 (23.16.025, 23.16.040, 23.18.070, 23.20.015, 23.20.020, 23.20.030, 23.20.040)

59525 Approves development plan (Special)

59526 Appropriation (Special)

59527 Sale of real property (Special)

59528 Approves development plan (Special)

59529 Tax relief (Special)

59530 Tax relief (Special)

59531 Tax relief (Special)

59532 Health care contract agreement (Special)

59533 Street merchants and performers (Repealed by 64569)

59534 Development of blighted property (Special)

59535 Development of blighted property (Special)

59536 Vacates and abolishes rights-of-way (Special)

59537 Development of blighted property (Special)

59538 Development of blighted property (Special)

59539 Development of blighted property (Special)

59540 Development of blighted property (Special)

59541 Development of blighted property (Special)

59542 Development of blighted property (Special)

59543 Development of blighted area (Special)

59544 Development of blighted area (Special)

59545 Development of blighted area (Special)

59546 Stop intersection designation (Special)

59547 Alley closure (Special)

59548 Development of blighted property (Special)

59549 Development of blighted area (Special)

59550 Building appropriation and contract authorization (Special)

59551 Development of blighted property (Special)

59552 Development of blighted property (Special)

59553 Vacates rights-of-way (Special)

59554 Development of blighted property (Special)

59555 Development of blighted property (Special)

59556 Development of blighted property (Special)

59557 Development of blighted property (Special)

59558 Construction contract authorization (Special)

59559 Development of blighted property (Special)

59560 Development of blighted area (Special)

59561 Approves development plan (Special)

59562 Traffic signal installation authorization (Special)

59563 Vacates surface rights (Special)

59564 Contract for water sale (Special)

59565 Development of blighted area (Special)

59566 Nunchaku prohibition (15.136.010, 15.136.030)

59567 Approves development plan (Special)

59568 Approves development plan (Special)

59569 Throwing star prohibition (15.136.020, 15.136.030)

59570 Development of blighted property (Special)

59571 Development of blighted property (Special)

59572 Development of blighted property (Special)

59573 Development of blighted property (Special)

59574 Development of blighted property (Special)

59575 Development of blighted property (Special)

59576 Approves development plan (Special)

59577 Board of aldermen; amends § 306.100 and 306.120; repeals Ord. 59513 (3.06.100, 3.06.120, 3.06.280, 3.06.290, 3.06.300, 3.06.310, 4.22.010)

59578 Amends §§ 4.18.125, 4.18.150 and 4.18.160, firemen's retirement system (4.18.125, 4.18.150, 4.18.160)

59579 Vacates surface rights (Special)

59580 Development of blighted property (Special)

59581 Proposition to amend § 29 of Art. XV of Charter (Charter, Art. XV)

59582	Amends § 5.58.110, supply purchase procedure (5.58.110)
59583	Approves development plan (Special)
59584	Approves development plan (Special)
59585	Development of blighted property (Special)
59586	Development of blighted property (Special)
59587	Development of blighted property (Special)
59588	Development of blighted property (Special)
59589	Development of blighted property (Special)
59590	Development of blighted property (Special)
59591	Development of blighted property (Special)
59592	Streets and alleys closures (Special)
59593	Easement agreement (Special)
59594	Appropriation (Special)
59595	Vacates surface rights (Special)
59596	Vacates surface rights (Special)
59597	Bond issuance (Special)
59598	Authorizes application for HUD funds (Special)
59599	Development of blighted property (Special)
59600	Development of blighted property (Special)
59601	Development of blighted property (Special)
59602	Development of blighted property (Special)
59603	Development of blighted property (Special)
59604	Development of blighted property (Special)
59605	Development of blighted property (Special)
59606	Development of blighted property (Special)
59607	Authorizes agreement with Missouri Pacific Railroad Company and Burlington Northern Railroad Company (Special)
59608	Approves development plan (Special)
59609	Repeals and replaces § 14.20.230, alcoholic beverages licensing (14.20.230)
59610	Grant agreement (Special)
59611	Development of blighted property (Special)
59612	Development of blighted property (Special)
59613	Development of blighted property (Special)
59614	Development of blighted property (Special)
59615	Development of blighted property (Special)
59616	Development of blighted property (Special)
59617	Development of blighted property (Special)
59618	Development of blighted property (Special)
59619	Development of blighted property (Special)
59620	Development of blighted property (Special)
59621	Development of blighted property (Special)
59622	Development of blighted property (Special)
59623	Vacates surface rights (Special)
59624	Vacates surface rights (Special)
59625	Air rights lease (Special)
59626	Development of blighted property (Special)
59627	Development of blighted property (Special)
59628	Amends § 17.62.150, parking meters (17.62.150)
59629	Parking restriction (Not codified)
59630	Development of blighted property (Special)

59631	Development of blighted property (Special)
59632	Development of blighted property (Special)
59633	Development of blighted property (Special)
59634	Development of blighted property (Special)
59635	Development of blighted property (Special)
59636	Development of blighted property (Special)
59637	Development of blighted property (Special)
59638	Development of blighted property (Special)
59639	Development of blighted property (Special)
59640	Development of blighted property (Special)
59641	Development of blighted property (Special)
59642	Development of blighted property (Special)
59643	Development of blighted property (Special)
59644	Sale of real estate (Special)
59645	Sale of real estate (Special)
59646	Sale of real estate (Special)
59647	Sale of real estate (Special)
59648	Sale of real estate (Special)
59649	Sale of real estate (Special)
59650	Sale of real estate (Special)
59651	Sale of real estate (Special)
59652	Sale of real estate (Special)
59653	Sale of real estate (Special)
59654	Sale of real estate (Special)
59655	Sale of real estate (Special)
59656	Sale of real estate (Special)
59657	Sale of real estate (Special)
59658	Sale of real estate (Special)
59659	Sale of real estate (Special)
59660	Development of blighted property (Special)
59661	Development of blighted property (Special)
59662	Development of blighted property (Special)
59663	Sale of real estate (Special)
59664	Approving development plan (Special)
59665	Vacates air, surface and subsurface rights (Special)
59666	Sale of real estate (Special)
59667	Park name change (Special)
59668	Vacates surface rights (Special)
59669	Rezone (Special)
59670	Development of blighted industrial area (Special)
59671	Approves industrial development plan (Special)
59672	Approves amendment to development plan (Special)
59673	Approves amendment to development plan (Special)
59674	Development of blighted property (Special)
59675	Approves development plan (Special)
59676	Rezone (Special)
59677	Development of blighted area (Special)
59678	Approves amendment for industrial/ commercial area (Special)
59679	Tax relief (Special)
59680	Development of blighted property (Special)
59681	Approves development plan (Special)
59682	Approves development plan (Special)
59683	Development of blighted property (Special)
59684	Development of blighted property (Special)
59685	Development of blighted property (Special)
59686	Development of blighted property (Special)
59687	Development of blighted property (Special)

59688 Development of blighted property (Special)

59689 Development of blighted property (Special)

59690 Development of blighted property (Special)

59691 Development of blighted property (Special)

59692 Development of blighted property (Special)

59693 Development of blighted property (Special)

59694 Development of blighted property (Special)

59695 Development of blighted property (Special)

59696 Development of blighted area (Special)

59697 Appropriation (Special)

59698 Appropriation (Special)

59699 Appropriation (Special)

59700 Development of blighted property (Special)

59701 Lease agreement (Special)

59702 Vacates and abolishes public easement (Special)

59703 Vacates surface rights (Special)

59704 Vacates surface rights (Special)

59705 Vacates surface rights (Special)

59706 Repeals and replaces § 21.08.060, leasing unimproved wharves (21.08.060)

59707 Street closure (Special)

59708 Retirement system (Repealed by 64833)

59709 Retirement system (Repealed by 64833)

59710 Sale of real estate (Special)

59711 Sale of real estate (Special)

59712 Sale of real estate (Special)

59713 Development of blighted property (Special)

59714 Retirement system (Repealed by 64833)

59715 Accepts domestic violence facility service proposal (Special)

59716 Amends § 4.18.010 firemen's retirement system (4.18.010)

59717 Amends development plan (Repealed by 60498)

59718 Lease agreement (Special)

59719 Lease agreement (Special)

59720 Development of blighted property (Special)

59721 Development of blighted property (Special)

59722 Development of blighted property (Special)

59723 Development of blighted property (Special)

59724 Development of blighted property (Special)

59725 Development of blighted property (Special)

59726 Development of blighted property (Special)

59727 Development of blighted property (Special)

59728 Development of blighted property (Special)

59729 Development of blighted property (Special)

59730 Sale of real estate (Special)

59731 Easement agreement (Special)

59732 Grant agreement amendment (Special)

59733 Lease agreement (Special)

59734 Development of blighted area (Special)

59735 Development of blighted area (Special)

59736 Sale of real estate (Special)

59737 Repeals and replaces § 14.20.230, alcoholic beverage licensing (Title 14)

59738 Tax relief (Special)

59739 Traffic signal installation (Special)

59740 Stop sign intersection designation (Special)

59741 Park, square or plaza land use (22.42)

59742 Development of blighted area (Special)

59743 Development of blighted area (Special)

59744 Approves development plan (Special)

59745 Development of blighted area (Special)

59746	Development of blighted property (Special)
59747	Vacates surface rights (Special)
59748	Street name change (Special)
59749	Amends Ord. 58300 to change name to Mackay Place (Special)
59750	Stop intersection designation (Special)
59751	Blood vendor registration (11.68)
59752	Street closure (Special)
59753	Street closure (Special)
59754	Motor vehicle license tax proposition (17.52.040A)
59755	Yard sales (Ch. 15.156)
59756	Development of blighted property (Special)
59757	Development of blighted property (Special)
59758	Development of blighted property (Special)
59759	Development of blighted property (Special)
59760	Development of blighted property (Special)
59761	Development of blighted property (Special)
59762	Development of blighted property (Special)
59763	Development of blighted property (Special)
59764	Approves development plan (Special)
59765	Development of blighted property (Special)
59766	Development of blighted property (Special)
59767	Development of blighted property (Special)
59768	Development of blighted property (Special)
59769	Development of blighted property (Special)
59770	Approves development plan (Special)
59771	Approves development plan (Special)
59772	Approves development plan (Special)
59773	Amends § 29 of Art. XV of Charter; repeals Ord. 59581 (Charter Art. XV, § 29)
59774	Vacates and abolishes rights-of-way (Special)
59775	Development of blighted property (Special)
59776	Development of blighted property (Special)
59777	Development of blighted property (Special)
59778	Development of blighted property (Special)
59779	Development of blighted property (Special)
59780	Development of blighted property (Special)
59781	Development of blighted property (Special)
59782	Development of blighted property (Special)
59783	Development of blighted property (Special)
59784	Development of blighted property (Special)
59785	Development of blighted property (Special)
59786	Sale of real estate (Special)
59787	Mooring lease (Special)
59788	Rezone (Special)
59789	Park designation (22.44.270)
59790	Vacates surface rights (Special)
59791	Vacates surface and subsurface rights (Special)
59792	Vacates air rights (Special)
59793	Development of blighted property (Special)
59794	Development of blighted property (Special)
59795	Development of blighted property (Special)
59796	Development of blighted property (Special)
59797	Development of blighted property (Special)

59798	Development of blighted property (Special)
59799	Development of blighted property (Special)
59800	Development of blighted property (Special)
59801	Development of blighted property (Special)
59802	Development of blighted areas (Special)
59803	Approves development plan (Special)
59804	Development of blighted property (Special)
59805	Accepts domestic violence service proposal (Special)
59806	Development of blighted property (Special)
59807	Development of blighted property (Special)
59808	Development of blighted property (Special)
59809	Development of blighted property (Special)
59810	Development of blighted property (Special)
59811	Approves development plan (Special)
59812	Approves development plan (Special)
59813	Development of blighted industrial area (Special)
59814	Approves commercial site plan (Special)
59815	Development of blighted property (Special)
59816	Development of blighted property (Special)
59817	Development of blighted property (Special)
59818	Approves development plan (Special)
59819	Development of blighted industrial area (Special)
59820	Approves commercial/industrial site plan (Special)
59821	Approves development plan (Special)
59822	Firemen's retirement system; repeals § 4.18.225 (4.18.225)
59823	Amends § 4.16.515, retirement system (Repealed by 64833)
59824	Landmark declaration for Christ Baptist Church (Special)
59825	Rezone (Special)
59826	Authorizes contract for sign posting (Special)
59827	Adds §§ 901.025, 901.035, 901.103, 901.104, 901.162, 901.165, 901.166, 901.331, 901.337, 901.375, 901.377, 901.480, 903.065, 904.025, 905.025, 906.015, 906.025, 907.015, 907.025, 908.015, 908.025, 909.015, 909.025, 909.026, 909.027, 910.015, 910.025, 911.015, 911.025, 914.025, 915.060 and Ch. 916A; repeals and replaces §§ 900.030, 901.080, 901.180, 901.220, 901.240, 901.325, 901.330, 901.350, 901.400, 901.430, 901.435, 901.440, 903.010, 903.020, 903.060, 903.070, 908.080, 904.020, 904.040, 904.050, 904.060, 905.020, 905.040, 905.080, 906.020, 906.030, 906.040, 906.050, 906.060, 906.070, 906.080, 906.090, 907.020, 907.030, 907.040, 907.045, 907.050, 907.060, 907.070, 907.080, 907.090, 908.020, 908.030, 908.070, 908.080, 908.090, 908.100, 909.020, 909.030, 909.070, 909.080, 909.090, 909.100, 910.020, 912.020, 913.020, 914.020, 915.010, 915.030, 915.050, 917.010, 917.020 and 917.030; repeals §§ 901.095, 901.105, 901.108, 901.230, 901.270, 903A.060, 909.060, 915.020, 915.060 and Ord. 58132, zoning (Not codified)
59828	Repeals Ord. 59547 street closure (Special)
59829	Housing conservation districts (Ch. 25.56)
59830	Development of blighted areas (Special)
59831	Approves development plan (Special)
59832	Development of blighted property (Special)
59833	Development of blighted property (Special)
59834	Development of blighted area (Special)

59835	Property acquisition (Special)
59836	Designates Cherokee-Lemp Historic District (Special)
59837	Development of blighted property (Special)
59838	Airport improvement program (Special)
59839	Repeals and replaces § 3.52.050, city journal (3.52.050)
59840	Development of blighted property (Special)
59841	Development of blighted property (Special)
59842	Development of blighted property (Special)
59843	Development of blighted property (Special)
59844	Development of blighted property (Special)
59845	Development of blighted property (Special)
59846	Development of blighted property (Special)
59847	Approves development plan (Special)
59848	Appropriation; repeals Ord. 59697 (Special)
59849	Approves development plan (Special)
59850	Development of blighted area (Special)
59851	Sidewalk improvement program (Special)
59852	Development of blighted area (Special)
59853	Development of blighted area (Special)
59854	Development of blighted area (Special)
59855	Approves development plan (Special)
59856	Sale of real estate (Special)
59857	Vacates and abolishes public rights-of-way (Special)
59858	Revenue anticipation notes authorization (Special)
59859	Street name change (Special)
59860	Weed abatement (Ch. 11.04)
59861	Sublease agreement (Special)
59862	Vacates public surface rights (Special)
59863	Vacates public surface rights (Special)
59864	Vacates public surface rights (Special)
59865	Approves development plan (Special)
59866	Sale of real estate (Special)
59867	Street name change (Special)
59868	Development of blighted property (Special)
59869	Development of blighted property (Special)
59870	Street name change (Special)
59871	Lease-purchase agreement (Special)
59872	Development of blighted property (Special)
59873	Urban development corporations (Not codified)
59874	(Not sent)
59875	Easement (Special)
59876	Partial tax relief (Special)
59877	Development of blighted property (Special)
59878	Development of blighted property (Special)
59879	Development of blighted property (Special)
59880	Development of blighted property (Special)
59881	Vacates public surface rights (Special)
59882	Bond election (Special)
59883	Development of blighted industrial area (Special)
59884	Approves commercial site extension plan (Special)
59885	Vacates public surface rights (Special)
59886	Vacates public surface rights (Special)
59887	Development of blighted property (Special)
59888	Easement (Special)
59889	Appropriation (Special)
59890	Appropriation (Special)
59891	Airport improvement program (Special)
59892	Appropriation (Special)

59893 Authorizes updating of airport environs plan (Special)

59894 Repeals and replaces § 1 of Ord. 59178, beverage bottles in public park (22.23.010)

59895 Lease agreement; repeals Ord. 54284 (Special)

59896 Vacates and abolishes public right-of-way (Special)

59897 Cervantes Convention Center improvement (Special)

59898 Sale of real estate (Special)

59899 Rezone (Special)

59900 Repeals and replaces § 1 of Ord. 57321, public work improvement (Special)

59901 Amends Ord. 49347, land acquisition appropriation (Special)

59902 Amends Ord. 34823, park name (22.44.280)

59903 Development of blighted property (Special)

59904 Approves development plan (Special)

59905 Vacates public surface rights (Special)

59906 Approves development plan (Special)

59907 Development of blighted areas (Special)

59908 Approves development plan (Special)

59909 Development of blighted property (Special)

59910 Approves development plan (Special)

59911 Approves development plan (Special)

59912 Development of blighted property (Special)

59913 Approves development plan (Special)

59914 Approves development plan (Special)

59915 Approves development plan (Special)

59916 Approves development plan (Special)

59917 Approves development plan (Special)

59918 Approves development plan (Special)

59919 Approves development plan (Special)

59920 Partial tax relief (Special)

59921 Vacates and abolishes public rights-of-way (Special)

59922 Sale of real estate (Special)

59923 Amends § 1 of Ord. 59090, street merchants and performers (Repealed by 64569)

59924 Alcoholic beverages sale at dance halls (Title 14)

59925 Vacates air rights (Special)

59926 Vacates and abolishes public rights-of-way (Special)

59927 Approves development plan (Special)

59928 Approves development plan (Special)

59929 Approves development plan (Special)

59930 Approves development plan (Special)

59931 Approves development plan (Special)

59932 Vacates and abolishes public rights-of-way (Special)

59933 Approves development plan (Special)

59934 Accepts grant agreement (Special)

59935 Accepts grant agreement (Special)

59936 Accepts grant agreement (Special)

59937 Appropriation (Special)

59938 Sheriff's office employees; repeals Ord. 59152 (4.36.010—4.36.060)

59939 City treasurer's office employees; repeals Ord. 59154 (4.26.020, 4.26.021, 4.26.022, 4.26.023)

59940 Circuit attorney office employees (4.48.010—4.48.050)

59941 Parking meter division employees; repeals Ord. 59467 (4.30.030—4.30.036)

59942 Parking meter division employees; repeals Ord. 59468 (4.30.010—4.30.024)

59943 Collection division employees (4.44.010—4.44.070)

59944 Repeals and replaces § 4.34.010, recorder of deeds employees (4.34.010—4.34.030)

59945 Development of blighted property (Special)

59946 Development of blighted property (Special)

59947 Rezone (Special)

59948 Approves development plan (Special)

59949 Approves development plan (Special)

59950 Approves development plan (Special)

59951 Development of blighted property (Special)

59952 Development of blighted property (Special)

59953 Development of blighted property (Special)

59954 Development of blighted property (Special)

59955 Approves development plan (Special)

59956 Vacates public surface rights (Special)

59957 Vacates public surface rights (Special)

59958 Approves development plan (Special)

59959 Development of blighted property (Special)

59960 Development of blighted property (Special)

59961 Approves development plan (Special)

59962 Approves development plan (Special)

59963 Approves development plan (Special)

59964 Approves development plan (Special)

59965 Vacates public surface rights (Special)

59966 Liquor sales for common eating area (Title 14)

59967 Lease-purchase agreement (Special)

59968 Development of blighted property (Special)

59969 Airport improvement program (Special)

59970 Appropriation (Special)

59971 Airport improvement program (Special)

59972 Easement agreement (Special)

59973 Proposition to amend §§ 820.140, 820.420 and 820.530, trucks (17.30.010, 17.30.020)

59974 Development of blighted area (Special)

59975 Appropriation (Special)

59976 Amends Ord. 51288, wreckers (8.110.010)

59977 Development of blighted area (Special)

59978 Approves amendment to development plan (Special)

59979 Zoning (26.04, 26.08, 26.12, 26.16, 26.20, 26.24, 26.28, 26.32, 26.36, 26.40, 26.44, 26.48, 26.52, 26.56, 26.60, 26.64, 26.68, 26.72, 26.76, 26.80, 26.84, 26.88, 26.92, 26.96, 26.100)

59980 Street closure (Special)

59981 Amends Ch. 26.84, zoning (Ch. 26.84)

59982 Amends §§ 2.08.400 and 2.08.410, election rules and procedures (2.08.400, 2.08.410)

59983 Partial tax relief (Special)

59984 Sale of real estate (Special)

59985 Classified service plan; repeals Ord. 59135 (Ch. 4.10)

59986 Development of blighted property (Special)

59987 Stop intersection designation (Special)

59988 Development of blighted property (Special)

59989 Sale of real estate (Special)

59990 Development of blighted area (Special)

59991 Development of blighted area (Special)

59992 Stop intersection designation; repeals Ord. 48119 (Special)

59993 Stop intersection designation (Special)

59994 Approves development plan (Special)

59995 Development of blighted property (Special)

59996 Development of blighted property (Special)

59997 Approves development plan (Special)

59998 Approves development plan (Special)

59999 Approves development plan (Special)

60000 Approves development plan (Special)

60001 Development of blighted property (Special)

60002 Approves development plan (Special)

60003 Street closure (Special)

60004 Amends Ord. 59565, development plan (Special)

60005 Approves development plan (Special)

60006 Solid waste disposal services contract (Special)

60007	Supplemental agreement for warning device installation (Special)
60008	Supplemental agreement for warning device installation (Special)
60009	Supplemental agreement for warning device installation (Special)
60010	Supplemental agreement for warning device installation (Special)
60011	Supplemental agreement for warning device installation (Special)
60012	Supplemental agreement for warning device installation (Special)
60013	Supplemental agreement for warning device installation (Special)
60014	Supplemental agreement for warning device installation (Special)
60015	Supplemental agreement for additional warning device installation (Special)
60016	Supplemental agreement for additional warning device installation (Special)
60017	Supplemental agreement for additional warning device installation (Special)
60018	Street naming procedure (Ch. 20.12)
60019	Transition center for homeless (Ch. 3.88)
60020	Proposed amendment to § 29, Art. XV of Charter (Charter Art. XV, § 29)
60021	Vacates public surface rights (Special)
60022	Approves development plan (Special)
60023	Air pollution; amends §§ 10, 19, 23, 26 and 31 (Ch. 11.34)
60024	Vacates public surface rights (Special)
60025	Amends Ord. 59578, firemen's retirement system (4.18.125, 4.18.150, 4.18.160)
60026	Sale of real estate (Special)
60027	Proposition on pick-up truck parking (17.30.010)
60028	Partial lease termination agreement (Special)
60029	Repeals and replaces Ch. 15.54, unlawful conduct at athletic events (Ch. 15.54)
60030	Parking permit for convention center (Special)
60031	Development of blighted property (Special)
60032	Approves development plan (Special)
60033	Development of blighted property (Special)
60034	Development of blighted property (Special)
60035	Development of blighted property (Special)
60036	Development of blighted property (Special)
60037	Development of blighted property (Special)
60038	Rezone (Special)
60039	Approves development plan (Special)
60040	Approves development plan (Special)
60041	Water main improvement (Special)
60042	Development of blighted property (Special)
60043	Development of blighted property (Special)
60044	Development of blighted property (Special)
60045	Development of blighted property (Special)
60046	Development of blighted property (Special)
60047	Development of blighted property (Special)
60048	Development of blighted property (Special)
60049	Development of blighted property (Special)
60050	Development of blighted property (Special)
60051	Development of blighted property (Special)
60052	Development of blighted property (Special)
60053	Development of blighted property (Special)
60054	Development of blighted property (Special)
60055	Development of blighted property (Special)

60056 Development of blighted property (Special)

60057 Development of blighted property (Special)

60058 Development of blighted property (Special)

60059 Development of blighted property (Special)

60060 Development of blighted property (Special)

60061 Development of blighted property (Special)

60062 Development of blighted property (Special)

60063 Development of blighted property (Special)

60064 Development of blighted property (Special)

60065 Development of blighted property (Special)

60066 Development of blighted property (Special)

60067 Development of blighted property (Special)

60068 Development of blighted property (Special)

60069 Approves development plan (Special)

60070 Development of blighted property (Special)

60071 Development of blighted property (Special)

60072 Approves development plan (Special)

60073 Approves development plan (Special)

60074 Bond issuance proposition (Special)

60075 Development of blighted property (Special)

60076 Approves development plan (Special)

60077 Development of blighted property (Special)

60078 Development of blighted property (Special)

60079 Development of blighted property (Special)

60080 Development of blighted property (Special)

60081 Development of blighted property (Special)

60082 Development of blighted property (Special)

60083 Fire Department equipment purchase authorization (Special)

60084 Development of blighted industrial area (Special)

60085 Approves industrial area plan (Special)

60086 Approves development plan (Special)

60087 Approves redevelopment plan (Special)

60088 Development of blighted area (Special)

60089 Approves redevelopment plan (Special)

60090 Development of blighted property (Special)

60091 Development of blighted property (Special)

60092 Development of blighted property (Special)

60093 Approves redevelopment plan (Special)

60094 Development of blighted property (Special)

60095 Development of blighted property (Special)

60096 Development of blighted property (Special)

60097 Development of blighted property (Special)

60098 Development of blighted property (Special)

60099 Development of blighted property (Special)

60100 Approves redevelopment plan (Special)

60101 Approves redevelopment plan (Special)

60102 Supplemental agreement for warning devices; repeals and replaces Ord. 60013 (Repealed by 60407)

60103 Sale of real estate (Special)

60104 Port maintenance fund (Repealed by 62518)

60105 Vacates public surface rights (Special)

60106 Wharf leasing (21.10.075)

60107 Vacates public surface rights (Special)

60108 Approves development plan (Special)

60109 Development of blighted property (Special)

60110 Stop intersection designation; repeals Ord. 46300 (Not codified)

60111 Appropriation (Special)

60112 Amends easement agreement (Special)

60113 Appropriation (Special)

60114 Development of blighted property (Special)

60115 Development of blighted property (Special)

60116 Amends Ord. 57452, street closure (Special)

60117 Development of blighted property (Special)

60118 Development of blighted property (Special)

60119 Approves development plan (Special)

60120 Approves development plan (Special)

60121 Approves development plan (Special)

60122 Approves development plan (Special)

60123 Approves development plan (Special)

60124 Adds §§ 17.76.010, 17.76.020, 17.76.025, 17.76.030, 17.76.040, 17.77.010, 17.77.020 and 17.77.030; repeals Ords. 58590, 58882, 59069 and 59473, handicapped parking (17.76.010, 17.76.020, 17.76.025, 17.76.030, 17.76.040, 17.77.010, 17.77.020, 17.77.030)

60125 Rezone (Special)

60126 Development of blighted property (Special)

60127 Development of blighted property (Special)

60128 Repeals and replaces § 5 of Ord. 54531, parking restrictions (Not codified)

60129 Development of blighted property (Special)

60130 Development of blighted property (Special)

60131 Development of blighted property (Special)

60132 Development of blighted property (Special)

60133 Development of blighted property (Special)

60134 Development of blighted property (Special)

60135 Vacates public surface rights (Special)

60136 Development of blighted property (Special)

60137 Development of blighted property (Special)

60138 Amends Ord. 60012 supplemental agreement for railroad crossing surface improvements (Special)

60139 Amends Ord. 60014, supplemental agreement for railroad crossing surface improvements (Special)

60140 Development of blighted property (Special)

60141 Approves development plan (Special)

60142 Development of blighted property (Special)

60143 Approves development plan (Special)

60144 Amends FAA grant agreement (Special)

60145 Appropriation (Special)

60146 Application for Housing and Community Development Act funding (Not codified)

60147 Repeals Ord. 59086 (Repealer)

60148 Vacates public surface rights (Special)

60149 Amends Ord. 59860, weeds and debris (11.04.140)

60150 Stop intersection designation (Not codified)

60151 Development of blighted property (Special)

60152 Repeals and replaces § 17.30.020B, trailer parking (17.30.020)

60153 Development of blighted property (Special)

60154 Approves development plan (Special)

60155 Development of blighted property (Special)

60156 Development of blighted area (Special)

60157 Development of blighted area (Special)

60158 Development of blighted property (Special)

60159 Development of blighted property (Special)

60160 Approves development plan (Special)

60161 Approves development plan (Special)

60162 Approves development plan (Special)

60163 Amends Ch. 26.16, zoning (26.16.010, 26.16.020, 26.16.030, 26.16.040, 26.16.050, 26.16.060, 26.16.065, 26.16.070, 26.16.080, 26.16.090)

60164 Development of blighted property (Special)

60165 Approves development plan (Special)

60166 Development of blighted property (Special)

60167 Development of blighted property (Special)

60168 Pick-up truck parking (17.30.025)

60169 Rezone (Special)

60170 Vacates public surface rights (Special)

60171 Development of blighted property (Special)

60172 Development of blighted property (Special)

60173 Development of blighted property (Special)

60174 Development of blighted property (Special)

60175 Development of blighted property (Special)

60176 Development of blighted property (Special)

60177 Approves development plan (Special)

60178 Approves development plan (Special)

60179 Approves development plan (Special)

60180 Approves development plan (Special)

60181 Approves development plan (Special)

60182 Development of blighted property (Special)

60183 Horse-drawn vehicles (8.43)

60184 Vacates public surface rights (Special)

60185 Rezone (Special)

60186 Development of blighted property (Special)

60187 Approves development plan (Special)

60188 Acquisition of real property (Special)

60189 Development of blighted area (Special)

60190 Designates Donald E. Lasater Fountain (22.44.290)

60191 License collector compensation; repeals Ord. 59158, 14718 and 57735 (4.28.010, 4.28.020, 4.28.030)

60192 Stop intersection designation (Not codified)

60193 Approves development plan (Special)

60194 Development of blighted industrial area (Special)

60195 Approves industrial area plan (Special)

60196 Establishes special business district (Special)

60197 Tax levy proposition (Special)

60198 Amends § 3 of Art. XVI of Charter; ballot proposition (Charter Art. XVI § 3)

60199 Appropriation (Special)

60200 Sale of real estate (Special)

60201 Approves development plan (Special)

60202 Repeals and replaces § 1 of Ord. 59705, vacation of public surface rights (Special)

60203 Stop intersection designation (Repealed by 60361)

60204 Approves development plan (Special)

60205 Amends lease agreement (Special)

60206 Vacates public surface rights (Special)

60207 Amends § 831.020(1) of Ord. 57831, street signals (17.24.070)

60208 Approves development plan (Special)

60209 Approves development plan (Special)

60210 Approves development plan (Special)

60211 Vacation of air rights (Special)

60212 Partial vacation of air rights (Special)

60213 Street closure (Special)

60214 Amends concession agreement (Special)

60215 Sale of real estate (Special)

60216 Vacates public surface rights (Special)

60217 Development of blighted property (Special)

60218 Development of blighted property (Special)

60219 Development of blighted property (Special)

60220 Development of blighted property (Special)

60221 Development of blighted property (Special)

60222 Development of blighted property (Special)

60223 Development of blighted property (Special)

60224 Development of blighted property (Special)

60225 Development of blighted property (Special)

60226 Development of blighted property (Special)

60227 Development of blighted property (Special)

60228 Development of blighted property (Special)

60229 Development of blighted property (Special)

60230 Vacates public surface rights (Special)

60231 Development of blighted area (Special)

60232 Repeals and replaces § 17.32.130, mud flaps (17.32.130)

60233 Development of blighted area (Special)

60234 Development of blighted property (Special)

60235 Land and mooring rights lease (Special)

60236 Designates historic district (Special)

60237 Board of aldermen executive secretary (3.06.240, 3.06.245, 4.22.010)

60238 Development of blighted area (Special)

60239 Approves development plan (Special)

60240 Domestic violence service appropriation (Special)

60241 Stop intersection designation (Not codified)

60242 Development of blighted property (Special)

60243 Repeals and replaces § 906.020 of Ord. 59827, zoning (Not codified)

60244 Rezone (Special)

60245 Development of blighted property (Special)

60246 Development of blighted property (Special)

60247 Repeals and replaces Ord. 58977, utility gas tax (23.36.010)

60248 Repeals and replaces Ord. 58976, utility electrical tax (23.30.030)

60249 Vacation of public rights-of-way (Special)

60250 Vacates public surface rights (Special)

60251 Stop intersection designation (Not codified)

60252 Construction contract (Special)

60253 Repeals and replaces § 17.16.150, turning movements (17.16.150)

60254 Vacation of public rights-of-way (Special)

60255 Development of blighted property (Special)

60256 Development of blighted property (Special)

60257 Approves development plan (Special)

60258 Approves development plan (Special)

60259 Approves development plan (Special)

60260 Approves development plan (Special)

60261 Approves development plan (Special)

60262 Approves development plan (Special)

60263 Approves development plan (Special)

60264 Approves development plan (Special)

60265 Vacates public surface rights (Special)

60266 Development of blighted property (Special)

60267 Amends airport use agreement (Special)

60268 Appropriation (Special)

60269 Amends Ord. 58556, appropriation (Special)

60270 Appropriation (Special)

60271 Appropriation (Special)

60272 Appropriation (Special)

60273 Vacation of air rights (Special)

60274 Amends §§ 17.62.240, 17.62.250 and 17.62.260, parking (17.62.240, 17.62.250 and 17.62.260)

60275 First source jobs policy (3.90)

60276 Appropriation (Special)

60277 Development of blighted property (Special)

60278 Land and mooring lease; repeals Ord. 55155 (Special)

60279 Stop intersection designation (Not codified)

60280 Stop intersection designation (Not codified)

60281 Amends § 3.24.240, fire department equipment (3.24.240)

60282 Repeals and replaces Ch. 26.76, floodplain areas (Repealed by 65420)

60283 Appropriation (Special)

60284 Lease authorization (Special)

60285 Dwight Davis Memorial Tennis Center renovation (Special)

60286 Appropriation (Special)

60287 Vacates public surface rights (Special)

60288 Vacates public surface rights (Special)

60289 Development of blighted property (Repealed by 60919)

60290 Repeals and replaces § 17.30.070, transportation of hazardous materials (17.30.070)

60291 Adds § 17.30.045, oversized loads on vehicles (17.30.045)

60292 Amends §§ 2, 10 and 11 of Ord. 59121, solid waste (11.02.005—11.02.100, 11.02.265, 11.02.270, 11.02.275, 11.02.315, 11.02.320, 11.02.330, 11.02.340, 11.02.365)

60293 Repeals and replaces § 17.52.330, materials on motor vehicles (17.52.330)

60294 Repeals and replaces § 8.110.020, wrecker license (8.110.020)

60295 Repeals and replaces § 17.32.010, motor vehicle operation (17.32.010)

60296 Parking violation inspectors and supervisors; repeals Ord. 59941 (4.30.030, 4.30.031, 4.30.032, 4.30.033, 4.30.034, 4.30.036)

60297 Authorizes 1987—1988 sidewalk improvement appropriation (Special)

60298 Development of blighted property (Special)

60299 Development of blighted property (Special)

60300 Development of blighted property (Special)

60301 Development of blighted property (Special)

60302 Development of blighted property (Special)

60303 Development of blighted property (Special)

60304 Approves development plan (Special)

60305 Development of blighted property (Special)

60306 Development of blighted property (Special)

60307 Street closure (Not codified)

60308 Development of blighted property (Special)

60309 Development of blighted property (Special)

60310 Development of blighted property (Special)

60311 Development of blighted property (Special)

60312 Development of blighted property (Special)

60313 Development of blighted property (Special)

60314 Amends § 1 of Ord. 51232, street numbers (20.16.020)

60315 Development of blighted property (Special)

60316 Development of blighted property (Special)

60317 Development of blighted property (Special)

60318 Development of blighted property (Special)

60319 Development of blighted property (Special)

60320 Development of blighted property (Special)

60321 Development of blighted property (Special)

60322 Development of blighted property (Special)

60323 Development of blighted property (Special)

60324 Development of blighted property (Special)

60325 Development of blighted property (Special)

60326 Approves development plan (Special)

60327 Approves development plan (Special)

60328 Approves development plan (Special)

60329 Authorizes contracts for automated water sampling system (Special)

60330 Vacates public rights-of-way (Special)

60331 Appropriation (Special)

60332 Development of blighted property (Special)

60333 Domestic violence service appropriation (Special)

60334 Development of blighted property (Special)

60335 Title conveyance for portion of city water system to St. Louis County Water Company (Special)

60336 Street closure (Not codified)

60337 Ground lease agreement (Special)

60338 Development of blighted property (Special)

60339 Vacates public surface rights (Special)

60340 Repeals and replaces § 5.14.020, fiscal year (5.14.020)

60341 Development of blighted property (Special)

60342 Vacates public surface rights (Special)

60343 Special employers' tax ballot proposal (Not codified)

60344 Sales tax increase ballot proposal (Not codified)

60345 Development of blighted property (Special)

60346 Approves development plan (Special)

60347 Amends § 3.06.090; repeals Ord. 57509, board of aldermen (3.06.090)

60348 Development of blighted property (Special)

60349 Development of blighted property (Special)

60350 Development of blighted property (Special)

60351 Appropriation (Special)

60352 Airport equipment acquisition agreement (Special)

60353 Road closure (Special)

60354 Acquisition of real property (Special)

60355 Traffic signal installation (Special)

60356 Designates Kiener Plaza Park (22.44.300)

60357 Designates stop intersection (Not codified)

60358 Designates stop intersection (Not codified)

60359 Easement (Special)

60360 Sale of real estate (Special)

60361 Repeals Ord. 60203 (Repealer)

60362 Authorizes helicopter service contract (Special)

60363 Adopts electrical code; repeals Ord. 58537 (Repealed by 60827)

60364 Development of blighted property (Special)

60365 Development of blighted property (Special)

60366 Mutual fire protection services (3.24)

60367 Development of blighted property (Special)

60368 Development of blighted property (Special)
60369 Bond issuance (Special)
60370 Designation of historic district (Special)
60371 Development of blighted property (Special)
60372 Development of blighted property (Special)
60373 Approves development plan (Special)
60374 Approves development plan (Special)
60375 Development of blighted property (Special)
60376 Approves development plan (Special)
60377 Approves development plan (Special)
60378 Approves development plan (Special)
60379 Approves development plan (Special)
60380 Approves development plan (Special)
60381 Approves development plan (Special)
60382 Approves development plan (Special)
60383 Approves development plan (Special)
60384 Approves development plan (Special)
60385 Approves development plan (Special)
60386 Public work and improvement program (Special)
60387 Exit construction agreement (Special)
60388 Traffic signal easement (Special)
60389 Ratifies and adopts Mayor and Comptroller actions (Special)
60390 Amends Ord. 59368, heritage and urban design (Title 24)
60391 Authorizes acceptance of dinosaur diorama donation (Special)
60392 Development of blighted property (Special)
60393 Rezone (Special)
60394 Lease-purchase agreement (Special)
60395 Appropriation (Special)
60396 Development of blighted property (Special)
60397 Approves development plan (Special)
60398 Development of blighted property (Special)
60399 Approves development plan (Special)
60400 Development of blighted property (Special)
60401 Approves industrial site plan (Special)
60402 Development of blighted property (Special)
60403 Approves commercial/industrial plan (Special)
60404 Rezone (Special)
60405 Development of blighted property (Special)
60406 Development of blighted property (Special)
60407 Supplemental agreement for warning devices; repeals and replaces Ord. 60102 (Special)
60408 Sale of real estate (Special)
60409 Development of blighted property (Special)
60410 Development of blighted property (Special)
60411 Vacation of subsurface rights (Special)
60412 Approves development plan (Special)
60413 Approves development plan (Special)
60414 Approves development plan (Special)
60415 Designates stop intersection (Not codified)
60416 Approves development plan (Special)
60417 Approves development plan (Special)
60418 Authorizes real property lease (Special)
60419 Capital fund; repeals § 3 of Ord. 49318 (5.35.010)
60420 Vacates right-of-way (Special)
60421 Development of blighted property (Special)
60422 Development of blighted property (Special)
60423 Approves development plan (Special)
60424 Appropriation (Special)
60425 Development of blighted property (Special)
60426 Development of blighted property (Special)

60427 Development of blighted property (Special)

60428 Repeals and replaces Ch. 26.76, zoning (Repealed by 65420)

60429 Designates stop intersection (Not codified)

60430 Appropriation (Special)

60431 Development of blighted property (Special)

60432 Approves development plan (Special)

60433 Development of blighted property (Special)

60434 Development of blighted property (Special)

60435 Approves development plan (Special)

60436 Approves development plan (Special)

60437 Development of blighted property (Special)

60438 Approves development plan (Special)

60439 Approves development plan (Special)

60440 Supplemental appropriation (Special)

60441 Appropriation (Special)

60442 Appropriation (Special)

60443 Appropriation (Special)

60444 Appropriation (Special)

60445 Appropriation (Special)

60446 Establishes improvement program (Special)

60447 Sale of real estate (Special)

60448 Restaurant tax (11.42.270, 11.42.272, 11.42.274)

60449 Hotel and motel license fee (8.06.515)

60450 Lease-purchase agreement (Special)

60451 Tax levy (Special)

60452 Designates stop intersection (Not codified)

60453 Approves development plan (Special)

60454 Appropriation (Special)

60455 Amends Ord. 59829, housing conservation districts (Ch. 25.56)

60456 Appropriation (Special)

60457 Amends § 12 of Ord. 59860, weeds (11.04.110)

60458 Amends Ord. 60290 preamble (Not codified)

60459 Development of blighted property (Special)

60460 Development of blighted property (Special)

60461 Development of blighted property (Special)

60462 Approves development plan (Special)

60463 Approves modified development plan (Special)

60464 Development of blighted property (Special)

60465 Sewer service lines repair ballot proposal (Not codified)

60466 Approves development plan (Special)

60467 Development of blighted property (Special)

60468 Development of blighted property (Special)

60469 Development of blighted property (Special)

60470 Development of blighted property (Special)

60471 Development of blighted property (Special)

60472 Development of blighted property (Special)

60473 Development of blighted property (Special)

60474 Development of blighted property (Special)

60475 Development of blighted property (Special)

60476 Vacates subsurface rights (Special)

60477 Vacates air rights (Special)

60478 Development of blighted property (Special)

60479 Approves development plan (Special)

60480 Development of blighted property (Special)

60481 Approves development plan (Special)

60482 Development of blighted property (Special)

60483	Amends §§ 26.28.015, 26.28.025, 26.28.030, 26.28.040, 26.28.070, 26.28.080, 26.28.090, 26.32.015, 26.32.020, 26.32.025, 26.32.030, 26.32.040, 26.32.045, 26.32.050, 26.32.060, 26.32.080, 26.36.015, 26.36.025, 26.36.030, 26.36.040, 26.36.050, 26.36.060, 26.36.070, 26.36.080, 26.36.090 and 26.36.100, zoning (26.28.015, 26.28.025, 26.28.030, 26.28.040, 26.28.070, 26.28.080, 26.28.090, 26.32.015, 26.32.020, 26.32.025, 26.32.030, 26.32.040, 26.32.045, 26.32.050, 26.32.060, 26.32.080, 26.36.015, 26.36.025, 26.36.030, 26.36.040, 26.36.050, 26.36.060, 26.36.070, 26.36.080, 26.36.090, 26.36.100)
60484	Approves development plan (Special)
60485	Approves commercial/industrial plan (Special)
60486	Development of blighted property (Special)
60487	Development of blighted property (Special)
60488	Development of blighted property (Special)
60489	Vacates public surface rights (Special)
60490	Authorizes lease agreement (Special)
60491	Grants easement (Special)
60492	Development of blighted property (Special)
60493	Vacates rights-of-way; repeals Ord. 59410 (Special)
60494	Designates stop intersection (Not codified)
60495	Designates stop intersection (Not codified)
60496	Repeals designation of certain stop intersection (Not codified)
60497	Designates stop intersection (Not codified)
60498	Approves development plan; repeals Ords. 59258 and 59717 (Special)
60499	Amends § 1 of Ord. 56629, development plan (Special)
60500	Rezone (Special)
60501	Development of blighted property (Special)
60502	Development of blighted property (Special)
60503	Approves commercial/industrial plan (Special)
60504	Vacates public surface rights (Special)
60505	Amends §§ 17.56.010, 17.56.020, 17.56.030, 17.56.040, 17.56.050, 17.56.060, 17.56.070, 17.56.080, 17.56.090, 17.56.100, 17.56.110, 17.56.120, 17.56.130, 17.56.140, 17.56.150, 17.56.160, 17.56.170, 17.56.180, 17.56.190, 17.56.200, 17.56.210, 17.56.220, 17.56.230, 17.56.240, 17.56.250, 17.56.260 and 17.56.270, abandoned automobiles (17.56.010, 17.56.020, 17.56.030, 17.56.040, 17.56.050, 17.56.060, 17.56.070, 17.56.080, 17.56.090, 17.56.100, 17.56.110, 17.56.120, 17.56.130, 17.56.140, 17.56.150, 17.56.160, 17.56.170, 17.56.180, 17.56.190, 17.56.200, 17.56.210, 17.56.220, 17.56.230, 17.56.240, 17.56.250, 17.56.260, 17.56.270)
60506	Real estate title conveyance (5.70)
60507	Vacates public surface rights (Special)
60508	Vacates public surface rights (Special)
60509	Vacates public surface rights (Special)
60510	Vacates public surface rights (Special)
60511	Acquistion of real property (Special)
60512	Sale of real estate (Special)
60513	Adopts 1987 BOCA National Mechanical Code; repeals Part III and Table 1-F of Part II of Ord. 58032 (25.03)
60514	Adopts 1987 BOCA National Fire Prevention Code; repeals Part VI of Ord. 58032 (25.06)
60515	Development of blighted property (Special)
60516	Development of blighted property (Special)
60517	Development of blighted property (Special)
60518	Development of blighted property (Special)

60519	Amends Ord. 59940, circuit attorney office employees (4.48.010, 4.48.020, 4.48.030, 4.48.040, 4.48.050)
60520	Housing conservation districts; repeals Ord. 59829 and 60455 (25.56)
60521	Development of blighted property (Special)
60522	Amendment and assignment concerning certain airport lease (Special)
60523	Development of blighted area (Special)
60524	Approves development plan (Special)
60525	Development of blighted property (Special)
60526	Development of blighted property (Special)
60527	Development of blighted property (Special)
60528	Development of blighted property (Special)
60529	Development of blighted property (Special)
60530	Amends Ord. 58728, Locust central business district (Special)
60531	Restaurant tax credits (Repealed by 61095)
60532	Development of blighted property (Special)
60533	Development of blighted property (Special)
60534	Development of blighted property (Special)
60535	Approves development plan (Special)
60536	Development of blighted property (Special)
60537	Approves development plan (Special)
60538	Grant agreement (Special)
60539	Grant agreement (Special)
60540	Appropriation (Special)
60541	Appropriation (Special)
60542	Expansion and improvement program (Special)
60543	Approves development plan (Special)
60544	Approves development plan (Special)
60545	Approves development plan (Special)
60546	Indecent or lewd acts; repeals §§ 15.30.010 and 15.30.020 (15.30)
60547	Development of blighted property (Special)
60548	(Not codified)
60549	Development of blighted property (Special)
60550	Approves development plan (Special)
60551	Approves development plan (Special)
60552	Approves development plan (Special)
60553	Approves development plan (Special)
60554	Approves development plan (Special)
60555	Approves development plan (Special)
60556	Approves development plan (Special)
60557	Approves development plan (Special)
60558	Approves development plan (Special)
60559	Approves development plan (Special)
60560	Designates stop intersection (Not codified)
60561	Vacates public surface rights (Special)
60562	Development of blighted property (Special)
60563	Housing and urban development agreement (Special)
60564	Repeals and replaces § 2(C) of Ord. 60248, utility electrical tax (23.30.030)
60565	Repeals and replaces § 2(C) of Ord. 60247, gas company gross receipts tax (23.36.010)
60566	Development of blighted property (Special)
60567	Development of blighted property (Special)
60568	Development of blighted property (Special)
60569	Development of blighted property (Special)
60570	Development of blighted property (Special)
60571	Development of blighted property (Special)
60572	Approves development plan (Special)
60573	Approves development plan (Special)

60574 Approves development plan (Special)
60575 Approves development plan (Special)
60576 Approves development plan (Special)
60577 Approves development plan (Special)
60578 Approves development plan (Special)
60579 Approves development plan (Special)
60580 Approves development plan (Special)
60581 Approves development plan (Special)
60582 Development of blighted property (Special)
60583 Development of blighted property (Special)
60584 Vacates public surface rights (Special)
60585 Approves development plan (Special)
60586 Amends Ord. 56942, Visitation Park historic district (Special)
60587 Approves development plan (Special)
60588 City emergency management agency; repeals Ord. 56848 (3.40)
60589 Development of blighted property (Special)
60590 Development of blighted property (Special)
60591 Development of blighted property (Special)
60592 Development of blighted property (Special)
60593 Development of blighted property (Special)
60594 Development of blighted property (Special)
60595 Approves development plan (Special)
60596 Approves development plan (Special)
60597 Approves development plan (Special)
60598 Approves development plan (Special)
60599 Vacates public subsurface rights (Special)
60600 Vacates public surface rights (Special)
60601 Repeals and replaces Ord. 59856, sale of real estate (Special)
60602 Vacates public surface rights (Special)
60603 Vacates public surface rights (Special)
60604 Development of blighted property (Special)
60605 Development of blighted property (Special)
60606 Development of blighted property (Special)
60607 Approves development plan (Special)
60608 Approves development plan (Special)
60609 Amends § 2 of Ord. 59553, right-of-way vacation (Special)
60610 Development of blighted property (Special)
60611 Development of blighted property (Special)
60612 Development of blighted property (Special)
60613 Approves redevelopment plan (Special)
60614 Prohibits parking on certain streets (Not codified)
60615 Development of blighted property (Special)
60616 Designates stop intersection (Special)
60617 Appropriations (Special)
60618 Development of blighted property (Special)
60619 Approves development plan (Special)
60620 Development of blighted property (Special)
60621 Approves development plan (Special)
60622 Development of blighted property (Special)
60623 Approves development plan (Special)
60624 Easement agreement (Special)
60625 Sale of real estate (Special)
60626 Lease agreement (Special)
60627 Development of blighted property (Special)
60628 Easement (Special)
60629 Adds material to air pollution control provisions; amends §§ 23, 31 and 32 of Ord. 59270, air pollution (Ch. 11.34)
60630 Lease agreement (Special)
60631 Sale of real estate (Special)

60632	Housing conservation district (Repealed by 67914)
60633	Rezone (Special)
60634	Rezone (Special)
60635	Sewer service lines repair ballot proposal (Not codified)
60636	Special election for library tax fund (Special)
60637	Special election (Special)
60638	Approves development plan (Special)
60639	Tax and fees contingency ordinance (Not codified)
60640	Tax and fees contingency ordinance (Not codified)
60641	Special election on city sales tax (Not codified)
60642	Special election on payroll expense tax (Not codified)
60643	Graduated business license tax (Ch. 8.07)
60644	Special election on retail sales tax (Not codified)
60645	Development of blighted property (Special)
60646	Approves development plan (Special)
60647	Approves development plan (Special)
60648	Vacates air rights (Special)
60649	Vacates public subsurface rights (Special)
60650	Redevelopment cooperation agreement (Special)
60651	Development of blighted property (Special)
60652	Development of blighted property (Special)
60653	Development of blighted property (Special)
60654	Designates stop intersection (Not codified)
60655	Development of blighted property (Special)
60656	Development of blighted property (Special)
60657	Development of blighted property (Special)
60658	Airport lease agreement (Special
60659	Grant agreement (Special)
60660	Appropriation (Special)
60661	Appropriation (Special)
60662	Appropriation (Special)
60663	Designates stop intersection (Not codified)
60664	Adopts 1987 BOCA National Building Code; repeals Ords. 49936, 50273, 55061, 58032 (parts I and II) and 59429 (25.01)
60665	Approves development plan (Special)
60666	Sale of real estate (Special)
60667	Approves development plan (Special)
60668	Safety belts (17.84)
60669	Development of blighted property (Special)
60670	Approves development plan (Special)
60671	Grant agreement (Special)
60672	Alley closure (Special)
60673	Earnings tax credit (Not codified)
60674	Acquisition of real property (Special)
60675	Acquisition of real property (Special)
60676	Railroad crossing signal installation (Not codified)
60677	Designates housing conservation district (Repealed by 67914)
60678	Easement (Special)
60679	Vacates public surface rights (Special)
60680	Vacates public surface rights (Special)
60681	Approves development plan (Special)
60682	Easement (Special)
60683	Easement (Special)
60684	Traffic control signals (Not codified)
60685	Vacates public surface rights (Special)
60686	Vacates public surface rights (Special)
60687	Development of blighted property (Special)
60688	Development of blighted property (Special)

60689 Development of blighted property (Special)

60690 Development of blighted property (Special)

60691 Development of blighted property (Special)

60692 Approves development plan (Special)

60693 Approves development plan (Special)

60694 Approves development plan (Special)

60695 Approves development plan (Special)

60696 Approves development plan (Special)

60697 Approves development plan (Special)

60698 Designates public streets (Not codified)

60699 Appropriation (Special)

60700 Sale of real estate (Special)

60701 Development of blighted property (Special)

60702 Authorizes barricade erection (Special)

60703 Sale of real estate (Special)

60704 Outdoor general advertising devices, repeals § 26.68.130 (24.44)

60705 Approves development plan (Special)

60706 Development of blighted property (Special)

60707 Development of blighted property (Special)

60708 Development of blighted property (Special)

60709 Development of blighted property (Special)

60710 Development of blighted property (Special)

60711 Development of blighted property (Special)

60712 Development of blighted property (Special)

60713 Development of blighted property (Special)

60714 Development of blighted property (Special)

60715 Development of blighted property (Special)

60716 Development of blighted property (Special)

60717 Development of blighted property (Special)

60718 Development of blighted property (Special)

60719 Development of blighted property (Special)

60720 Development of blighted property (Special)

60721 Development of blighted property (Special)

60722 Development of blighted property (Special)

60723 Development of blighted property (Special)

60724 Sheriff's office employees; repeals Ord. 59983 (4.36)

60725 Development of blighted property (Special)

60726 Development of blighted property (Special)

60727 Approves development plan (Special)

60728 Approves development plan (Special)

60729 Approves development plan (Special)

60730 Development of blighted property (Special)

60731 Development of blighted property (Special)

60732 Grants leasehold (Special)

60733 Designates housing conservation district (Repealed by 67914)

60734 Designates housing conservation district (Repealed by 67914)

60735 Conditionally repeals Ord. 60343; repeals §§ 8.06.310, 8.06.312, 8.06.314, 8.06.316, 8.06.318, 8.06.320, 8.06.322, 8.06.324, 8.06.326, 8.06.328, 8.06.330, 8.06.332, 8.06.334, 8.06.336, 8.06.338, 8.06.340, 8.06.342, 8.06.344, 8.06.346, 8.06.348, 8.06.350, 8.06.352, 8.06.354, 8.06.356, 8.06.358, 8.06.360, 8.06.362, 8.06.364, 8.06.366, 8.06.368, 8.06.370, 8.06.372, 8.06.374, 8.06.376, 8.06.378, 8.06.380, 8.06.382, 8.06.384, 8.06.386, 8.06.388, 8.06.390, 8.06.392, 8.06.394, 8.06.396, 8.06.398, 8.06.400, 8.06.402, 8.06.404, 8.06.406, 8.06.408, 8.06.410,

	8.06.412, 8.06.414, 8.08.416, 8.06.418, 8.06.420, 8.06.422, 8.06.434, 8.06.436, 8.06.438, 8.06.440, 8.06.442, 8.06.444, 8.06.446, 8.06.448, 8.06.450, 8.06.454, 8.06.456, 8.06.458, 8.06.460, 8.06.462, 8.06.464, 8.06.466, 8.06.468, 8.06.470, 8.06.472, 8.06.474, 8.06.476, 8.06.478, 8.06.480, 8.06.482, 8.06.484, 8.06.486, 8.06.488, 8.06.490, 8.06.492, 8.06.494, 8.06.496, 8.06.498, 8.06.500, 8.06.502, 8.06.508, 8.06.510, 8.06.516, 8.06.518, 8.06.520, 8.06.522, 8.06.524, 8.06.526, 8.06.528, 8.06.530, 8.06.532, 8.06.534, 8.06.536, 8.06.538, 8.06.540, 8.06.542, 8.06.544, 8.06.546, 8.06.548, 8.06.550, 8.06.554, 8.06.558, 8.06.560, 8.06.564, 8.06.566, 8.06.568, 8.06.570, 8.06.572, 8.06.574, 8.06.576, 8.06.578, 8.06.580, 8.06.582, 8.06.584, 8.06.586, 8.06.588, 8.06.590, 8.06.592, 8.06.594, 8.06.596, 8.06.598, 8.06.600, 8.06.602, 8.06.604, 8.06.606, 8.06.610, 8.06.612, 8.06.614, 8.06.616, 8.06.618, 8.06.620, 8.06.622, 8.06.624, 8.06.626, 8.06.628, 8.06.630, 8.06.632, 8.06.634, 8.06.636, 8.06.638, 8.06.640, 8.06.642, 8.06.644, 8.06.646, 8.06.648, 8.06.650, 8.06.652, 8.06.654, 8.06.656, 8.06.658, 8.06.660, 8.06.662, 8.06.664, 8.06.666, 8.06.667, 8.06.668, 8.06.670, 8.06.672, 8.06.674, 8.06.676, 8.06.678, 8.06.680, 8.06.682, 8.06.684, 8.06.686, 8.06.688, 8.06.690, 8.06.692, 8.06.694, 8.06.696, 8.14.030(H), 8.14.130(H), 8.16.030, 8.16.100, 8.20.030, 8.22.030, 8.24.100, 8.26.020, 8.30.020, 8.32.030, 8.36.050, 8.38.010, 8.40.030, 8.44.050, 8.46.030, 8.52.100, 8.54.030, 8.56.150, 8.62.080, 8.64.050,8.66.040, 8.72.040, 8.74.030, 8.74.050, 8.80.020, 8.86.090, 8.90.020, 8.90.030, 8.90.050, 8.92.030, 8.97.020, 8.100.070, 8.100.240, 8.100.290, 8.100.300, 8.100.350, 8.102.010, 8.102.070, 8.104.020, 8.106.020, 8.114.030, 8.114.070, 11.02.310, 11.02.345, 11.08.100, 11.44.090, part of Table 1-B of Ord. 58032 and part of Table 1-B of Ord. 58536 (Repealer)
60736	Amends Ord. 58032, 58523, 59270, 60513 and 60514 by repealing those provisions of those ordinances dealing with the imposition of various periodic inspection fees (Repealer)
60737	Payroll expense tax (Ch. 5.23)
60738	Development of blighted property (Special)
60739	Development of blighted property (Special)
60740	Approves development plan (Special)
60741	Approves development plan (Special)
60742	Development of blighted property (Special)
60743	Development of blighted property (Special)
60744	Development of blighted property (Special)
60745	Development of blighted property (Special)
60746	Development of blighted property (Special)
60747	Development of blighted property (Special)
60748	Approves development plan (Special)
60749	Approves development plan (Special)
60750	Approves development plan (Special)
60751	Approves development plan (Special)
60752	Development of blighted property (Special)
60753	Approves commercial/industrial plan (Special)
60754	Development of blighted property (Special)
60755	Approves industrial site plan (Special)
60756	Development of blighted property (Special)
60757	Development of blighted property (Special)
60758	Approves development plan (Special)
60759	Appropriation (Special)
60760	Development of blighted property (Special)
60761	Approves commercial plan (Special)

60762 Vacates public surface rights (Special)
60763 Vacates public surface rights (Special)
60764 Vacates public surface rights (Special)
60765 Vacates public surface rights (Special)
60766 Vacates public surface rights (Special)
60767 Vacates public surface rights (Special)
60768 Rezone (Special)
60769 Repeals and replaces § 17.28.030, vehicles and traffic (17.28.030)
60770 Designates stop intersection (Special)
60771 Development of blighted property (Special)
60772 Development of blighted property (Special)
60773 Authorizes temporary street closure (Special)
60774 Development of blighted property (Special)
60775 Development of blighted property (Special)
60776 Development of blighted property (Special)
60777 Development of blighted property (Special)
60778 Development of blighted property (Special)
60779 Development of blighted property (Special)
60780 Development of blighted property (Special)
60781 Development of blighted property (Special)
60782 Development of blighted property (Special)
60783 Development of blighted property (Special)
60784 Development of blighted property (Special)
60785 Approves development plan (Special)
60786 Approves development plan (Special)
60787 Approves development plan (Special)
60788 Approves development plan (Special)
60789 Approves development plan (Special)
60790 Approves development plan (Special)
60791 Approves development plan (Special)
60792 Development of blighted property (Special)
60793 Approves development plan (Special)
60794 Development of blighted property (Special)
60795 Approves development plan (Special)
60796 Development of blighted property (Special)
60797 Street naming; repeals Ord. 60018 (20.12)
60798 Designates housing conservation district (Repealed by 67914)
60799 Approves development plan (Special)
60800 Rezone (Special)
60801 Rezone (Special)
60802 Rezone (Special)
60803 Rezone (Special)
60804 Appropriation (Special)
60805 Appropriation (Special)
60806 Appropriation (Special)
60807 Appropriation (Special)
60808 Appropriation (Special)
60809 Appropriation (Special)
60810 Authorizes airport expansion and improvement program (Special)
60811 Waterline easement (Special)
60812 Appropriation (Special)
60813 Amends § 5 of Ord. 60236, historic district designation (Special)
60814 Development of blighted property (Special)
60815 Development of blighted property (Special)
60816 Development of blighted property (Special)
60817 Development of blighted property (Special)
60818 Development of blighted property (Special)
60819 Development of blighted property (Special)

60820 Development of blighted property (Special)

60821 Development of blighted property (Special)

60822 Development of blighted property (Special)

60823 Development of blighted property (Special)

60824 Approves development plan (Special)

60825 Approves development plan (Special)

60826 Adopts National Standard Plumbing Code; repeals Part IV of Ord. 58032 (25.04.040)

60827 Adopts National Electrical Code; repeals Ords. 58536, 58736, 58809 and 60363 (25.02)

60828 Adopts BOCA Basic Property Maintenance Code; repeals Ords. 45445, 48338, 48916 and 49936 (25.32)

60829 Development of blighted property (Special)

60830 Development of blighted property (Special)

60831 Development of blighted property (Special)

60832 Approves development plan (Special)

60833 Development of blighted property (Special)

60834 Approves development plan (Special)

60835 Rezone (Special)

60836 Rezone (Special)

60837 Rezone (Special)

60838 Rezone (Special)

60839 Rezone (Special)

60840 Rezone (Special)

60841 Rezone (Special)

60842 Rezone (Special)

60843 Rezone (Special)

60844 Rezone (Special)

60845 Rezone (Special)

60846 Rezone (Special)

60847 Rezone (Special)

60848 Rezone (Special)

60849 Rezone (Special)

60850 Obstructions and encroachments (20.28)

60851 Development of blighted area (Special)

60852 Approves commercial/industrial site plan (Special)

60853 Designates housing conservation (Repealed by 67914)

60854 Appropriation (Special)

60855 Appropriation (Special)

60856 Approves development plan (Special)

60857 Development of blighted property (Special)

60858 Development of blighted property (Special)

60859 Development of blighted property (Special)

60860 Development of blighted property (Special)

60861 Development of blighted property (Special)

60862 Development of blighted property (Special)

60863 Development of blighted property (Special)

60864 Development of blighted property (Special)

60865 Development of blighted property (Special)

60866 Development of blighted property (Special)

60867 Development of blighted property (Special)

60868 Development of blighted property (Special)

60869 Development of blighted property (Special)

60870 Approves development plan (Special)

60871 Approves development plan (Special)

60872 Authorizes temporary street closure (Special)

60873 Development of blighted property (Special)

60874 Appropriation (Special)

60875 Development of blighted property (Special)

60876 Appropriation (Special)

60877 Rule of 80 retirement window (Repealed by 64833)

60878 Dogs; repeals Ord. 57980 (Repealed by 65206)

60879 Earnings tax credit (5.22.025)

60880 Lease agreement (Special)

60881 Amends § 3 of Art. XVII of Charter; ballot proposition (Charter Art. XVII § 3)

60882 Development of blighted property (Special)

60883 Development of blighted property (Special)

60884 Approves development plan (Special)

60885 Development of blighted property (Special)

60886 Approves development plan (Special)

60887 Approves development plan (Special)

60888 Renames street (Not codified)

60889 Prohibits parking on certain street (Not codified)

60890 Lease agreement (Special)

60891 Development of blighted property (Special)

60892 Approves development plan (Special)

60893 Lease agreement (Special)

60894 Development of blighted property (Special)

60895 Approves development plan (Special)

60896 Approves development plan (Special)

60897 Approves development plan (Special)

60898 Approves development plan (Special)

60899 Approves development plan (Special)

60900 Repeals and replaces § 6 of Ord. 54999, city airport commission and airport commission (18.08.060)

60901 Designates stop intersection (Not codified)

60902 Development of blighted property (Special)

60903 Approves development plan (Special)

60904 Approves development plan (Special)

60905 Approves development plan (Special)

60906 Approves development plan (Special)

60907 Approves development plan (Special)

60908 Development of blighted property (Special)

60909 Development of blighted property (Special)

60910 Development of blighted property (Special)

60911 Development of blighted property (Special)

60912 Approves development plan (Special)

60913 Development of blighted property (Special)

60914 Approves development plan (Special)

60915 Development of blighted property (Special)

60916 Designates stop intersection (Not codified)

60917 Authorizes temporary alley closure (Special)

60918 Authorizes temporary street closure (Special)

60919 Repeals Ord. 60289 (Repealer)

60920 Authorizes alley closure (Special)

60921 Authorizes temporary street closure (Special)

60922 Development of blighted area (Special)

60923 Approves industrial plan (Special)

60924 Development of blighted property (Special)

60925 Designates certain public rights-of-way (Special)

60926 Development of blighted property (Special)

60927 Development of blighted property (Special)

60928 Transfer of funds (Special)

60929 Designates housing conservation district (Repealed by 67914)

60930 Amends Ord. 60622, development of blighted property (Special)

60931	Amends Ord. 60623, development plan approval (Special)
60932	Vacates public surface rights (Special)
60933	Vacates public surface rights (Special)
60934	Amends Ord. 60856, development plan (Special)
60935	Vehicle towing code; repeals Ords. 56159, 56910, 57891 and 60505 (17.56)
60936	Development of blighted property (Special)
60937	Development of blighted property (Special)
60938	Approves development plan (Special)
60939	Development of blighted property (Special)
60940	Real estate project (Special)
60941	Approves development plan (Special)
60942	Development of blighted property (Special)
60943	Development of blighted property (Special)
60944	Development of blighted property (Special)
60945	Development of blighted property (Special)
60946	Development of blighted property (Special)
60947	Approves development plan (Special)
60948	Demolition contractors (Repealed by 63703)
60949	Amends § 26.68.030, zoning (26.68.030)
60950	Repeals and replaces Ch. 20.36, streets, sidewalks and bridges (20.36)
60951	Development of blighted area (Special)
60952	Approves industrial plan (Special)
60953	Appropriation (Special)
60954	Approves development plan (Special)
60955	Approves development plan (Special)
60956	Approves development plan (Special)
60957	Development of blighted property (Special)
60958	Development of blighted property (Special)
60959	Development of blighted property (Special)
60960	Development of blighted property (Special)
60961	Development of blighted property (Special)
60962	Development of blighted property (Special)
60963	Development of blighted property (Special)
60964	Development of blighted property (Special)
60965	Development of blighted property (Special)
60966	Development of blighted property (Special)
60967	Development of blighted property (Special)
60968	Development of blighted property (Special)
60969	Development of blighted property (Special)
60970	Development of blighted property (Special)
60971	Development of blighted property (Special)
60972	Development of blighted property (Special)
60973	Approves development plan (Special)
60974	Approves development plan (Special)
60975	Development of blighted property (Special)
60976	Development of blighted property (Special)
60977	Development of blighted property (Special)
60978	Development of blighted property (Special)
60979	Development of blighted property (Special)
60980	Development of blighted property (Special)
60981	Approves development plan (Special)
60982	Development of blighted property (Special)

60983 Approves development plan (Special)
60984 Development of blighted property (Special)
60985 Approves development plan (Special)
60986 Development of blighted property (Special)
60987 Approves development plan (Special)
60988 Development of blighted property (Special)
60989 Approves development plan (Special)
60990 Development of blighted property (Special)
60991 Approves development plan (Special)
60992 Development of blighted property (Special)
60993 Approves development plan (Special)
60994 Development of blighted property (Special)
60995 Approves industrial plan (Special)
60996 Development of blighted property (Special)
60997 Grant agreement (Special)
60998 Appropriation (Special)
60999 Airport space permit (Special)
61000 Development of blighted property (Special)
61001 Approves development plan (Special)
61002 Development of blighted property (Special)
61003 Development of blighted property (Special)
61004 Approves development plan (Special)
61005 Approves development plan (Special)
61006 Approves development plan (Special)
61007 Approves development plan (Special)
61008 Park Capital improvements fund apportionment (5.72)
61009 Development of blighted property (Special)
61010 Approves industrial plan (Special)
61011 Development of blighted property (Special)
61012 Development of blighted property (Special)
61013 Development of blighted property (Special)
61014 Development of blighted property (Special)
61015 Development of blighted property (Special)
61016 Development of blighted property (Special)
61017 Development of blighted property (Special)
61018 Development of blighted property (Special)
61019 Development of blighted property (Special)
61020 Development of blighted property (Special)
61021 Development of blighted property (Special)
61022 Development of blighted property (Special)
61023 Development of blighted property (Special)
61024 Development of blighted property (Special)
61025 Development of blighted property (Special)
61026 Development of blighted property (Special)
61027 Development of blighted property (Special)
61028 Development of blighted property (Special)
61029 Approves development plan (Special)
61030 Development of blighted property (Special)
61031 Approves development plan (Special)
61032 Development of blighted property (Special)
61033 Approves development plan (Special)
61034 Development of blighted property (Special)
61035 Approves development plan (Special)

61036	Development of blighted property (Special)
61037	Approves development plan (Special)
61038	Development of blighted property (Special)
61039	Approves development plan (Special)
61040	Approves development plan (Special)
61041	Appropriation (Special)
61042	Vacates public surface rights (Special)
61043	Vacates public surface rights (Special)
61044	Vacates public surface rights (Special)
61045	Vacates public surface rights (Special)
61046	Amends § 3 of Art. XVII of Charter; ballot proposition (Charter Art. XVII § 3)
61047	Police dogs and horses (15.12.010—15.12.030)
61048	Investment agreement (Special)
61049	Appropriation for airport construction (Special)
61050	Airport public work and improvement plan (Special)
61051	Light rail property donation agreements (Special)
61052	Bond issuance (Special)
61053	Amends § 114.0 of Ord. 60664, building inspection fees (Repealed by 63610)
61054	Amends § ES-802.0 and § EX-902.2 of Ord. 60828, BOCA building code (Not codified)
61055	Amends § M-114.0 of Ord. 60513, mechanical permit and inspection fee (Repealed by 62611)
61056	Repeals and repeals §§ P-10.5.9 and P-14.4 of Ord. 60826, plumbing code (Repealed by 61243)
61057	Sale of real estate (Special)
61058	Economic development project agreement (Special)
61059	Proposed sewer repair charge (Failed)
61060	Revenue bond issuance (Special)
61061	Appropriation (Special)
61062	Designates stop intersection (Special)
61063	Supplemental agreement of additional railroad warning devices (Special)
61064	Speed limit (17.10.090)
61065	Development of blighted property (Special)
61066	Development of blighted property (Special)
61067	Approves development plan (Special)
61068	Approves development plan (Special)
61069	Development of blighted property (Special)
61070	Development of blighted property (Special)
61071	Approves development plan (Special)
61072	Approves development plan (Special)
61073	Development of blighted property (Special)
61074	Development of blighted property (Special)
61075	Development of blighted property (Special)
61076	Approves development plan (Special)
61077	Approves development plan (Special)
61078	Approves development plan (Special)
61079	Approves development plan (Special)
61080	Development of blighted property (Special)
61081	Development of blighted property (Special)
61082	Development of blighted property (Special)
61083	Development of blighted property (Special)
61084	Approves development plan (Special)
61085	Development of blighted property (Special)
61086	Development of blighted property (Special)
61087	Approves development plan (Special)
61088	Comptroller's contingent fund; repeals Ord. 55653 (5.04.120, 5.04.130, 5.04.140)
61089	Mayor's contingent fund; repeals Ord. 55652 (5.42.010, 5.42.020, 5.42.030)

61090	Aldermanic expense funds (5.19)
61091	Speed limit in parking lots (17.10.090)
61092	Vacation of public surface rights (Special)
61093	Cable television franchise (Not codified)
61094	Contractor's business license (8.12A.010—8.12A.100)
61095	Amends Ords. 60629 § 1D3, 60531(1)J, inspection and license fees (Ch. 11.34)
61096	Authorizes application for funding for community development (Special)
61097	Development of blighted property (Special)
61098	Approves development plan (Special)
61099	Development of blighted property (Special)
61100	Development of blighted property (Special)
61101	Development of blighted property (Special)
61102	Development of blighted property (Special)
61103	Development of blighted property (Special)
61104	Development of blighted property (Special)
61105	Development of blighted property (Special)
61106	Development of blighted property (Special)
61107	Development of blighted property (Special)
61108	Development of blighted property (Special)
61109	Approves development plan (Special)
61110	Development of blighted property (Special)
61111	Approves development plan (Special)
61112	Development of blighted property (Special)
61113	Approves development plan (Special)
61114	Development of blighted property (Special)
61115	Approves development plan (Special)
61116	Approves development plan (Special)
61117	Approves development plan (Special)
61118	Approves development plan (Special)
61119	Approves development plan (Special)
61120	Approves development plan (Special)
61121	Development of blighted property (Special)
61122	Approves development plan (Special)
61123	Approves development plan (Special)
61124	Development of blighted property (Special)
61125	Designates stop intersection (Special)
61126	Temporary street closure (Special)
61127	Approves development plan (Special)
61128	Disabled parking (17.76.050, 17.76.060, 17.76.070)
61129	Approves development plan (Special)
61130	Designates stop intersection (Special)
61131	Development of blighted property (Special)
61132	Development of blighted property (Special)
61133	Approves development plan (Special)
61134	Development of blighted property (Special)
61135	Development of blighted property (Special)
61136	Development of blighted property (Special)
61137	Approves development plan (Special)
61138	Development of blighted property (Special)
61139	Approves development plan (Special)
61140	Development of blighted property (Special)
61141	Approves development plan (Special)
61142	Development of blighted property (Special)
61143	Approves development plan (Special)
61144	Approves development plan (Special)
61145	Development of blighted property (Special)

61146 Approves development plan (Special)

61147 Designates stop intersection (Special)

61148 Designates stop intersection (Special)

61149 Transfer of certain facilities to Missouri history museum subdistrict (Special)

61150 Designates stop intersection (Special)

61151 Designates stop intersection (Special)

61152 Development of blighted property (Special)

61153 Approves development plan (Special)

61154 Approves development plan (Special)

61155 Approves development plan (Special)

61156 Approves development plan (Special)

61157 Development of blighted property (Special)

61158 Approves development plan (Special)

61159 Development of blighted property (Special)

61160 Approves development plan (Special)

61161 Development of blighted property (Special)

61162 Grant agreement (Special)

61163 Approves development plan (Special)

61164 Approves development plan (Special)

61165 Approves development plan (Special)

61166 Development of blighted property (Special)

61167 Development of blighted property (Special)

61168 Approves development plan (Special)

61169 Amendment to grant agreement (Special)

61170 Amendment to grant agreement (Special)

61171 Approves development plan (Special)

61172 Water line repair surcharge (23.04.075)

61173 Adds § 105.2.1 to BOCA building code (Repealed by 63610)

61174 Real estate agreement for light rail development (Not codified)

61175 Designates stop intersection (Special)

61176 Vacation of public right-of-way (Special)

61177 Extends boundaries of Central West End Historic District (Special)

61178 Designates housing conservation district (Repealed by 67914)

61179 Vacates public surface rights (Special)

61180 Designates housing conservation district (Repealed by 67914)

61181 Designates stop intersection (Special)

61182 Supplemental appropriation (Special)

61183 Approves development plan (Special)

61184 Vacation of public surface rights (Special)

61185 Amends § 17.30.030, motor vehicle size (17.30.030)

61186 Repeals and replaces § 17.24.070, prohibited parking (17.24.070)

61187 Authorization for playground (Special)

61188 Street construction agreement (Special)

61189 Development of blighted property (Special)

61190 Development of blighted property (Special)

61191 Development of blighted property (Special)

61192 Development of blighted property (Special)

61193 Development of blighted property (Special)

61194 Development of blighted property (Special)

61195 Development of blighted property (Special)

61196 Development of blighted property (Special)

61197 Proposed amendment to Charter §§ 1, 2 and 9 of Art. III, recall of elective officers (Failed)

61198 Proposed addition to Charter § 2A of Art. VIII, city departments (Failed)

61199 Proposed sales tax (Failed)

61200 Approves development plan (Special)

61201 Development of blighted property (Special)

61202 Development of blighted property (Special)

61203 Development of blighted property (Special)

61204 Approves development plan (Special)

61205 Development of blighted property (Special)

61206 Approves development plan (Special)

61207 Contract for water sale and distribution (Special)

61208 Street closure (Special)

61209 Amends § 1 of Ord. 61148, street name (Special)

61210 Lease of land (Special)

61211 Vacates public surface rights (Special)

61212 Designates stop intersection (Special)

61213 Development of blighted property (Special)

61214 Development of blighted property (Special)

61215 Development of blighted property (Special)

61216 Approves development plan (Special)

61217 Approves development plan (Special)

61218 Approves development plan (Special)

61219 Approves development plan (Special)

61220 Approves development plan (Special)

61221 Approves development plan (Special)

61222 Approves development plan (Special)

61223 Approves development plan (Special)

61224 Development of blighted property (Special)

61225 Development of blighted property (Special)

61226 Approves development plan (Special)

61227 Development of blighted property (Special)

61228 Approves development plan (Special)

61229 Development of blighted property (Special)

61230 Approves development plan (Special)

61231 Approves development plan (Special)

61232 Development of blighted property (Special)

61233 Approves development plan (Special)

61234 Development of blighted property (Special)

61235 Approves development plan (Special)

61236 Development of blighted property (Special)

61237 Development of blighted property (Special)

61238 Approves development plan (Special)

61239 Development of blighted property (Special)

61240 Approves development plan (Special)

61241 Development of blighted property (Special)

61242 Approves development plan (Special)

61243 Repeals Ord. 61056 (Repealer)

61244 Vacation of public right-of-way (Special)

61245 Vacation of public surface rights (Special)

61246 Vacation of public surface rights (Special)

61247 Vacation of public surface rights (Special)

61248 Classified service for employees (4.10)

61249 Repeals and replaces § 1 of Ord. 59441, employee retirement (Repealed by 64833)

61250 Repeals and replaces §§ 2 and 4 of Ord. 60419, capital fund (5.35)

61251 Repeals and replaces § 5.10.070, treasurer's duties (5.10.070)

61252 Airport concession agreement (Special)

61253 Development of blighted property (Special)

61254 Approves development plan (Special)

61255 Development of blighted property (Special)

61256 Development of blighted property (Special)

61257 Approves development plan (Special)

61258 Development of blighted property (Special)

61259 Development of blighted property (Special)

61260 Approves development plan (Special)

61261 Development of blighted property (Special)

61262 Development of blighted property (Special)

61263 Approves development plan (Special)

61264 Development of blighted property (Special)

61265 Development of blighted property (Special)

61266 Approves development plan (Special)

61267 Development of blighted property (Special)

61268 Development of blighted property (Special)

61269 Airport public work and improvement program (Special)

61270 Supplemental appropriation (Special)

61271 Supplemental appropriation (Special)

61272 Authorizes airport public works and improvement program (Special)

61273 Authorizes airport public works and improvement program (Special)

61274 Appropriation (Special)

61275 Authorizes airport public works and improvement program (Special)

61276 Authorizes airport public works and improvement program (Special)

61277 Institutional vandalism and racial intimidation (15.19.010—15.19.050)

61278 Repeals and replaces Ch. 4.44, collector of revenue's office salaries (4.44.010—4.44.060)

61279 Sheriff's office salaries; repeals Ord. 60724 (4.36.010—4.36.065)

61280 Repeals and replaces § 4.34.010, recorder of deeds employees salaries (4.34.010—4.34.100)

61281 Parking meter division employees salaries; repeals Ord. 59942 (4.30.010, 4.30.020, 4.30.021, 4.30.022)

61282 License collector employees compensation (4.28.010—4.28.070)

61283 Sidewalk repair authorization (Special)

61284 Office of circuit attorney employee salaries (4.48.010—4.48.050)

61285 Treasurer's office employee salaries; repeals Ord. 59154 (4.26.020—4.26.023, 4.26.040)

61286 Vacation of public surface rights (Special)

61287 Vacation of public surface rights (Special)

61288 Vacation of public surface rights (Special)

61289 Repeals and replaces Title 14, alcoholic beverages; repeals Ords. 49072, 49423, 49943, 51376, 54229, 54791, 54923, 55265, 55407, 55517, 55948, 56104, 56105, 56592, 57024, 57293, 57446, 57833, 58354, 58367, 58387, 58406, 58410, 58470, 58530, 58561, 58699, 58706, 58725, 58996, 58019, 59022, 59257, 59373, 59516, 59517, 59737, 59924 and 59966 (14.01.010—14.01.450, 14.02.010—14.02.090, 14.03.010—14.03.210, 14.04.010—14.04.100, 14.05.010—14.05.150, 14.06.010—14.06.340, 14.07.010—14.07.050, 14.08.010—14.08.230)

61290 Vacation of public surface rights (Special)

61291 Rezone (Special)

61292 Vacation of public surface rights (Special)

61293 Amends Ord. 61180, housing conservation district (Repealed by 67914)

61294 Court cost fee (3.08.370, 3.08.385)

61295 Vacation of public surface rights (Special)

61296 Sale of real estate (Special)

61297 Vacation of public surface rights (Special)

61298 Vacation of public surface rights (Special)

61299 Vacation of public surface rights (Special)

61300	Development of blighted property (Special)
61301	Development of blighted property (Special)
61302	Approves development plan (Special)
61303	Motor vehicle engine idling restriction (17.78.070, 17.78.080, 17.78.090, 17.78.100)
61304	Development of blighted property (Special)
61305	Development of blighted property (Special)
61306	Development of blighted property (Special)
61307	Appropriation for Abused Women's Support Project (Not codified)
61308	Accepts services proposal for domestic violence; appropriation (Not codified)
61309	Sidewalk repair (20.26.240)
61310	Vacation of public rights-of-way (Special)
61311	Development of blighted property (Special)
61312	Development of blighted property (Special)
61313	Approves development plan (Special)
61314	Development of blighted property (Special)
61315	Development of blighted property (Special)
61316	Approves development plan (Special)
61317	Development of blighted property (Special)
61318	Approves development plan (Special)
61319	Development of blighted property (Special)
61320	Development of blighted property (Special)
61321	Development of blighted property (Special)
61322	Development of blighted property (Special)
61323	Approves development plan (Special)
61324	Approves development plan (Special)
61325	Approves development plan (Special)
61326	Approves development plan (Special)
61327	Development of blighted property (Special)
61328	Approves development plan (Special)
61329	Development of blighted property (Special)
61330	Approves development plan (Special)
61331	Development of blighted property (Special)
61332	Approves development plan (Special)
61333	Development of blighted property (Special)
61334	Approves development plan (Special)
61335	Development of blighted property (Special)
61336	Approves development plan (Special)
61337	Approves development plan (Special)
61338	Approves development plan (Special)
61339	Approves development plan (Special)
61340	Approves development plan (Special)
61341	Approves development plan (Special)
61342	Amends Ord. 60705, development plan (Special)
61343	Approves development plan (Special)
61344	Improvement of Route 366 agreement (Special)
61345	Appropriation for highway construction (Special)
61346	Designates stop intersection (Special)
61347	Repeals and replaces § 17.62.180, parking meters (17.62.180)
61348	Temporary street closure (Special)
61349	Approves development plan (Special)
61350	Development of blighted property; repeals Ord. 59076 (Special)
61351	Appropriations (Special)
61352	Outdoor storage of tires (11.70.010—11.70.030)

61353	Authorizes airport public works and improvement program (Special)
61354	Lease agreement (Special)
61355	Development of blighted property (Special)
61356	Approves development plan (Special)
61357	Approves development plan (Special)
61358	Development of blighted property (Special)
61359	Approves development plan (Special)
61360	Approves development plan (Special)
61361	Approves development plan (Special)
61362	Permit for selling on wharf; repeals Ord. 56267 (21.40.010—21.40.050)
61363	Proposed sales tax (Failed)
61364	Repair of sewer lines fees (23.40.010—23.40.120)
61365	Housing conservation districts (Ch. 25.56)
61366	Demolition permit applications (Title 24)
61367	Development of blighted property (Special)
61368	Approves development plan (Special)
61369	Development of blighted property (Special)
61370	Approves development plan (Special)
61371	Development of blighted property (Special)
61372	Development of blighted property (Special)
61373	Development of blighted property (Special)
61374	Development of blighted property (Special)
61375	Development of blighted property (Special)
61376	Development of blighted property (Special)
61377	Approves development plan (Special)
61378	Approves development plan (Special)
61379	Development of blighted property (Special)
61380	Development of blighted property (Special)
61381	Development of blighted property (Special)
61382	Development of blighted property (Special)
61383	Development of blighted property (Special)
61384	Development of blighted property (Special)
61385	Development of blighted property (Special)
61386	Approves development plan (Special)
61387	Development of blighted property (Special)
61388	Approves development plan (Special)
61389	Development of blighted property (Special)
61390	Approves development plan (Special)
61391	Development of blighted property (Special)
61392	Development of blighted property (Special)
61393	Development of blighted property (Special)
61394	Development of blighted property (Special)
61395	License tax and fee collection (5.04.150)
61396	Amends § 11.60.010, intoxicating solvents (Repealed by 62533)
61397	Development of blighted property (Special)
61398	Vendors at fairs and festivals (8.109.010—8.109.070)
61399	Approves development plan (Special)
61400	Approves development plan (Special)
61401	Approves development plan (Special)
61402	Approves development plan (Special)
61403	Approves development plan (Special)
61404	Approves development plan (Special)
61405	Development of blighted property (Special)

61406 Development of blighted property (Special)

61407 Approves development plan (Special)

61408 Development of blighted property (Special)

61409 Development of blighted property (Special)

61410 Approves development plan (Special)

61411 Approves development plan (Special)

61412 Approves development plan (Special)

61413 Authorizes borrowing of funds (Special)

61414 Credit for unused sick leave (4.10)

61415 Repeals and replaces § 15.48.010, loitering (15.48.010, 15.48.020, 15.48.030)

61416 Lease of city property (Special)

61417 Lease of city property (Special)

61418 Sale of real estate (Special)

61419 Sale of real estate (Special)

61420 Sale of real estate (Special)

61421 Development of blighted property (Special)

61422 Development of blighted property (Special)

61423 Development of blighted property (Special)

61424 Development of blighted property (Special)

61425 Subscription to City Journal; repeals Ord. 58444 (3.52.090)

61426 Development of blighted property (Special)

61427 Approves development plan (Special)

61428 Development of blighted property (Special)

61429 Approves development plan (Special)

61430 Development of blighted property (Special)

61431 Approves development plan (Special)

61432 Development of blighted property (Special)

61433 Approves development plan (Special)

61434 Development of blighted property (Special)

61435 Approves development plan (Special)

61436 Approves development plan (Special)

61437 Approves development plan (Special)

61438 Approves development plan (Special)

61439 Development of blighted property (Special)

61440 Development of blighted property (Special)

61441 Approves development plan (Special)

61442 Development of blighted property (Special)

61443 Development of blighted property (Special)

61444 Approves development plan (Special)

61445 Development of blighted property (Special)

61446 Approves development plan (Special)

61447 Development of blighted property (Special)

61448 Approves development plan (Special)

61449 Approves development plan (Special)

61450 Development of blighted property (Special)

61451 Approves development plan (Special)

61452 Development of blighted property (Special)

61453 Approves development plan (Special)

61454 Development of blighted property (Special)

61455 Approves development plan (Special)

61456 Development of blighted property (Special)

61457 Approves development plan (Special)

61458 Development of blighted property (Special)

61459 Approves development plan (Special)

61460 Development of blighted property (Special)

61461 Development of blighted property (Special)

61462 Approves development plan (Special)

61463 Development of blighted property (Special)

61464 Approves development plan (Special)

61465 Approves development plan (Special)

61466 Development of blighted property (Special)

61467 Appropriation (Special)

61468 Street closure (Special)

61469 Parking permits (Not codified)

61470 Amends plumbing code (Not codified)

61471 Amends development plan (Special)

61472 Vacation of public surface rights (Special)

61473 Vacation of public surface rights (Special)

61474 Vacation of public surface rights (Special)

61475 Vacation of public surface rights (Special)

61476 Curfew area (15.49.010, 15.49.020)

61477 Grant agreement (Special)

61478 Grant agreement (Special)

61479 Space permit agreement (Special)

61480 Easement deeds (Special)

61481 Amended agency agreement (Special)

61482 Development of blighted property (Special)

61483 Approves development plan (Special)

61484 Development of blighted property (Special)

61485 Development of blighted property (Special)

61486 Development of blighted property (Special)

61487 Development of blighted property (Special)

61488 Approves development plan (Special)

61489 Appropriation (Special)

61490 Appropriation (Special)

61491 Airport use agreement (Special)

61492 Rezone (Special)

61493 Designates stop intersection (Special)

61494 Designates stop intersection (Special)

61495 Approves development plan (Special)

61496 Approves development plan (Special)

61497 Approves development plan (Special)

61498 Development of blighted property (Special)

61499 Development of blighted property (Special)

61500 Development of blighted property (Special)

61501 Development of blighted property (Special)

61502 Proposed amendment to §§ 1, 2 to Charter Art. III, recall of elected officials (Failed)

61503 Development of blighted property (Special)

61504 Approves development plan (Special)

61505 Development of blighted property (Special)

61506 Approves development plan (Special)

61507 Drug paraphernalia; repeals Ord. 58606 (11.61.010—11.61.030)

61508 Development of blighted property (Special)

61509 Approves development plan (Special)

61510 Approves development plan (Special)

61511 Approves development plan (Special)

61512 Development of blighted property (Special)

61513 Development of blighted property (Special)

61514 Approves development plan (Special)

61515 Development of blighted property (Special)

61516 Approves development plan (Special)

61517 Development of blighted property (Special)

61518 Approves development plan (Special)

61519 Development of blighted property (Special)

61520 Approves development plan (Special)

61521 Approves development plan (Special)

61522	Street closure (Special)
61523	Repeals Ord. 51025, parking (Repealer)
61524	Development of blighted property (Special)
61525	Approves development plan (Special)
61526	Repeals and replaces §§ 5.26.100, 5.26.110, 5.26.120, 5.26.130, 5.26.140, 5.26.150, deferred maintainance improvements (5.26.100, 5.26.110, 5.26.120, 5.26.130, 5.26.140, 5.26.150)
61527	Lease agreement (Special)
61528	Temporary street closure (Special)
61529	Approves development plan (Special)
61530	Designates stop intersection (Special)
61531	Development of blighted property (Special)
61532	Development of blighted property (Special)
61533	Development of blighted property (Special)
61534	Development of blighted property (Special)
61535	Development of blighted property (Special)
61536	Development of blighted property (Special)
61537	Development of blighted property (Special)
61538	Development of blighted property (Special)
61539	Development of blighted property (Special)
61540	Housing conservation district; repeals Ord. 61365 (Ch. 25.56)
61541	Collateralized mortgage bond program (Special)
61542	Vacation of public surface rights (Special)
61543	Vacation of air rights (Special)
61544	Vacation of public surface rights (Special)
61545	Housing conservation district (Repealed by 67914)
61546	Rezone (Special)
61547	Lease agreement (Special)
61548	Vacation of public right-of-way (Special)
61549	Vacation of public surface rights (Special)
61550	Handicapped parking; repeals Ords. 58590, 58882, 59069, 59473, 60124 (17.76.010, 17.76.020, 17.76.025, 17.76.030, 17.76.035, 17.76.040, 17.77.020, 17.77.030)
61551	Proposed sales tax (Failed)
61552	Street vacation (Special)
61553	Development of blighted property (Special)
61554	Approves development plan (Special)
61555	Development of blighted property (Special)
61556	Approves development plan (Special)
61557	Sale of real estate (Special)
61558	Development of blighted property (Special)
61559	Ivory Perry Memorial Park (22.44)
61560	Development of blighted property (Special)
61561	Development of blighted property (Special)
61562	Approves development plan (Special)
61563	Development of blighted property (Special)
61564	Approves development plan (Special)
61565	Development of blighted property (Special)
61566	Approves development plan (Special)
61567	Development of blighted property (Special)
61568	Development of blighted property (Special)
61569	Development of blighted property (Special)
61570	Development of blighted property (Special)
61571	Development of blighted property (Special)

61572 Development of blighted property (Special)
61573 Approves development plan (Special)
61574 Approves development plan (Special)
61575 Development of blighted property (Special)
61576 Approves development plan (Special)
61577 Development of blighted property (Special)
61578 Approves development plan (Special)
61579 Development of blighted property (Special)
61580 Approves development plan (Special)
61581 Development of blighted property (Special)
61582 Approves development plan (Special)
61583 Development of blighted property (Special)
61584 Approves development plan (Special)
61585 Development of blighted property (Special)
61586 Approves development plan (Special)
61587 Development of blighted property (Special)
61588 Approves development plan (Special)
61589 Appropriation (Special)
61590 Appropriation (Special)
61591 Master site lease (Special)
61592 Amendment to grant agreement (Special)
61593 Amendment to grant agreement (Special)
61594 Authorizes airport public works and improvement program (Special)
61595 Development of blighted property (Special)
61596 Approves development plan (Special)
61597 Approves development plan (Special)
61598 Approves development plan (Special)
61599 Approves development plan (Special)
61600 Approves development plan (Special)
61601 Development of blighted property (Special)
61602 Approves development plan (Special)
61603 Approves development plan (Special)
61604 Development of blighted property (Special)
61605 Approves development plan (Special)
61606 Development of blighted property (Special)
61607 Approves development plan (Special)
61608 Development of blighted property (Special)
61609 Approves development plan (Special)
61610 Development of blighted property (Special)
61611 Approves development plan (Special)
61612 Development of blighted property (Special)
61613 Approves development plan (Special)
61614 Development of blighted property (Special)
61615 Approves development plan (Special)
61616 Development of blighted property (Special)
61617 Approves development plan (Special)
61618 Development of blighted property (Special)
61619 Approves development plan (Special)
61620 Development of blighted property (Special)
61621 Approves development plan (Special)
61622 Development of blighted property (Special)
61623 Development of blighted property (Special)
61624 Development of blighted property (Special)
61625 Development of blighted property (Special)
61626 Development of blighted property (Special)
61627 Approves development plan (Special)
61628 Vacation of public rights-of-way (Special)
61629 Approves development plan (Special)

61630 Development of blighted property (Special)
61631 Approves development plan (Special)
61632 Development of blighted property (Special)
61633 Development of blighted property (Special)
61634 Development of blighted property (Special)
61635 Development of blighted property (Special)
61636 Approves development plan (Special)
61637 Approves development plan (Special)
61638 Rezone (Special)
61639 Approves development plan (Special)
61640 Development of blighted property (Special)
61641 Approves development plan (Special)
61642 Development of blighted property (Special)
61643 Development of blighted property (Special)
61644 Approves development plan (Special)
61645 Approves development plan (Special)
61646 Development of blighted property (Special)
61647 Development of blighted property (Special)
61648 Development of blighted property (Special)
61649 Development of blighted property (Special)
61650 Development of blighted property (Special)
61651 Development of blighted property (Special)
61652 Development of blighted property (Special)
61653 Approves development plan (Special)
61654 Repeals and replaces § 11.02.255(F), refuse collection (11.02.255)
61655 Development of blighted property (Special)
61656 Approves development plan (Special)
61657 Approves development plan (Special)
61658 Development of blighted property (Special)
61659 Approves development plan (Special)
61660 Development of blighted property (Special)
61661 Approves development plan (Special)
61662 Development of blighted property (Special)
61663 Approves development plan (Special)
61664 Approves development plan (Special)
61665 Development of blighted property (Special)
61666 Approves development plan (Special)
61667 Development of blighted property (Special)
61668 Development of blighted property (Special)
61669 Development of blighted property (Special)
61670 Development of blighted property (Special)
61671 Approves development plan (Special)
61672 Development of blighted property (Special)
61673 Approves development plan (Special)
61674 Approves development plan (Special)
61675 Approves development plan (Special)
61676 Approves development plan (Special)
61677 Development of blighted property (Special)
61678 Development of blighted property (Special)
61679 Approves development plan (Special)
61680 Development of blighted property (Special)
61681 Development of blighted property (Special)
61682 Development of blighted property (Special)
61683 Approves development plan (Special)
61684 Designates stop intersection (Special)
61685 Designates stop intersection (Special)

61686 Designates stop intersection (Special)

61687 Rezone (Special)

61688 Development of blighted property (Special)

61689 Traffic signal installation (Special)

61690 Traffic signal installation (Special)

61691 Street closure (Special)

61692 Designates city park (22.44.320)

61693 Vacation of public surface rights (Special)

61694 Vacation of air rights (Special)

61695 Authorizes application for funding (Special)

61696 Amends § 18.08.030, airport commission cooperation agreement (18.08.030)

61697 Vacation of air rights (Special)

61698 Vacation of public surface rights (Special)

61699 Collateralized mortgage bond program (Special)

61700 Development of blighted property (Special)

61701 Approves development plan (Special)

61702 Development of blighted property (Special)

61703 Approves development plan (Special)

61704 Development of blighted property (Special)

61705 Approves development plan (Special)

61706 Development of blighted property (Special)

61707 Development of blighted property (Special)

61708 Approves development plan (Special)

61709 Lease of wharf (Special)

61710 Development of blighted property (Special)

61711 Repeals and replaces § 2(n)(1) of Ord. 61248, cash awards for personnel (4.10)

61712 Grant agreement (Special)

61713 Lawn sprinklers (23.04.255)

61714 Development of blighted property (Special)

61715 Street and alley vacation (Special)

61716 Designates stop signs (Special)

61717 Development of blighted property (Special)

61718 Development of blighted property (Special)

61719 Approves development plan (Special)

61720 Development of blighted property (Special)

61721 Approves development plan (Special)

61722 Development of blighted property (Special)

61723 Development of blighted property (Special)

61724 Development of blighted property (Special)

61725 Development of blighted property (Special)

61726 Development of blighted property (Special)

61727 Approves development plan (Special)

61728 Development of blighted property (Special)

61729 Approves development plan (Special)

61730 Approves development plan (Special)

61731 Development of blighted property (Special)

61732 Approves development plan (Special)

61733 Development of blighted property (Special)

61734 Development of blighted property (Special)

61735 Approves development plan (Special)

61736 Development of blighted property (Special)

61737 Approves development plan (Special)

61738 Development of blighted property (Special)

61739 Development of blighted property (Special)

61740 Approves development plan (Special)

61741 Development of blighted property (Special)

61742	Development of blighted property (Special)
61743	Approves development plan (Special)
61744	Development of blighted property (Special)
61745	Development of blighted property (Special)
61746	Development of blighted property (Special)
61747	Approves development plan (Special)
61748	Airport use agreement (Special)
61749	Development of blighted property (Special)
61750	Development of blighted property (Special)
61751	Electrical Code; repeals Ord. 60827 (25.02)
61752	Supplemental appropriation (Special)
61753	Street closure amendment (Special)
61754	Airport expansion and improvement program (Special)
61755	Lease of wharf (21.08.080)
61756	Vacation of public surface rights (Special)
61757	Vacation of public surface rights (Special)
61758	Rezone (Special)
61759	Amends grant agreement (Special)
61760	Amends § 11.02.245(F), refuse collection (11.02.245)
61761	Vacation of public surface rights (Special)
61762	Amends § 8.26.090, billiard and pool tables (8.26.090)
61763	Development of blighted property (Special)
61764	Development of blighted property (Special)
61765	Street closure (Special)
61766	Vacation of public surface rights (Special)
61767	Street and sidewalk use fee; repeals Ord. 58033 (20.46.010)
61768	Amends § 17(a), (b) and (c) of Ord. 61356, tax abatement (Special)
61769	Development of blighted property (Special)
61770	Approves development plan (Special)
61771	Development of blighted property (Special)
61772	Approves development plan (Special)
61773	Development of blighted property (Special)
61774	Approves development plan (Special)
61775	Development of blighted property (Special)
61776	Approves development plan (Special)
61777	Development of blighted property (Special)
61778	Approves development plan (Special)
61779	Development of blighted property (Special)
61780	Development of blighted property (Special)
61781	Development of blighted property (Special)
61782	Development of blighted property (Special)
61783	Development of blighted property (Special)
61784	Development of blighted property (Special)
61785	Development of blighted property (Special)
61786	Development of blighted property (Special)
61787	Development of blighted property (Special)
61788	Development of blighted property (Special)
61789	Development of blighted property (Special)
61790	Development of blighted property (Special)
61791	Approves development plan (Special)
61792	Vacation of public right-of-way (Special)

61793 Approves development plan (Special)

61794 Approves development plan (Special)

61795 Development of blighted property (Special)

61796 Development of blighted property (Special)

61797 Transfer of real property (Repealed by 62551)

61798 Appropriation from convention and tourism fund (Special)

61799 Expansion of convention center (Special)

61800 Amends Ord. 58903, ad valorem tax (Special)

61801 Repeals and replaces § 1 of Ord. 60702, street closure (Special)

61802 Development of blighted property (Special)

61803 Approves development plan (Special)

61804 Development of blighted property (Special)

61805 Approves development plan (Special)

61806 Development of blighted property (Special)

61807 Approves development plan (Special)

61808 Approves development plan (Special)

61809 Approves development plan (Special)

61810 Approves development plan (Special)

61811 Approves development plan (Special)

61812 Quit claim deed (Special)

61813 Appropriation (Special)

61814 Street closure (Special)

61815 Amends Ord. 60609, street vacation (Special)

61816 Prohibits bridge toll gate (17.86.010—17.86.020)

61817 Development of blighted property (Special)

61818 Approves development plan (Special)

61819 Vacation of public rights-of-way (Special)

61820 Amends Ord. 61452 and 61453, development of blighted property (Special)

61821 Amends Ord. 61533, development of blighted property (Special)

61822 Vacation of public surface rights (Special)

61823 Vacation of public surface rights (Special)

61824 Vacation of public surface rights (Special)

61825 Development of blighted property (Special)

61826 Development of blighted property (Special)

61827 Development of blighted property (Special)

61828 Airport public work and improvement program (Special)

61829 Appropriation (Special)

61830 Lease of wharf (Special)

61831 Grant agreement (Special)

61832 Development of blighted property (Special)

61833 Development of blighted property (Special)

61834 Development of blighted property (Special)

61835 Development of blighted property (Special)

61836 Development of blighted property (Special)

61837 Development of blighted property (Special)

61838 Development of blighted property (Special)

61839 Development of blighted property (Special)

61840 Development of blighted property (Special)

61841 Development of blighted property (Special)

61842 Approves development plan (Special)

61843 Lease of land (Special)

61844 Amends Ch. 4.18, retirement (4.18.209)

61845 Housing conservation district (Repealed by 67914)

61846	Vacation of public surface rights (Special)
61847	Rezone (Special)
61848	Easement deed (Special)
61849	Development of blighted property (Special)
61850	Extension and improvement of municipal water works (Special)
61851	Extension and improvement of municipal water works (Special)
61852	Extension and improvement of municipal water works (Special)
61853	Extension and improvement of municipal water works (Special)
61854	Extension and improvement of municipal water works (Special)
61855	Easement deed (Special)
61856	Amends Ord. 58775, development of blighted property (Special)
61857	Off-street parking and loading (26.74.010—26.74.050)
61858	Development of blighted property (Special)
61859	Development of blighted property (Special)
61860	Development of blighted property (Special)
61861	Development of blighted property (Special)
61862	Approves development plan (Special)
61863	Development of blighted property (Special)
61864	Approves development plan (Special)
61865	Development of blighted property (Special)
61866	Approves development plan (Special)
61867	Development of blighted property (Special)
61868	Development of blighted property (Special)
61869	Approves development plan (Special)
61870	Development of blighted property (Special)
61871	Development of blighted property (Special)
61872	Approves development plan (Special)
61873	Development of blighted property (Special)
61874	Approves development plan (Special)
61875	Development of blighted property (Special)
61876	Approves development plan (Special)
61877	Appropriation approves development plan (Special)
61878	Amends Ord. 61364, repair of service lines (23.40.080, 23.40.090, 23.40.100, 23.40.110)
61879	Sale of real estate (Special)
61880	Development of blighted property (Special)
61881	Development of blighted property (Special)
61882	Vacation of public surface rights (Special)
61883	Vacation of public surface rights (Special)
61884	Vacation of public surface rights (Special)
61885	Approves development plan (Special)
61886	Development of blighted property (Special)
61887	Development of blighted property (Special)
61888	Development of blighted property (Special)
61889	Development of blighted property (Special)
61890	Development of blighted property (Special)
61891	Development of blighted property (Special)
61892	Development of blighted property (Special)
61893	Development of blighted property (Special)
61894	Approves development plan (Special)
61895	Approves development plan (Special)

61896 Approves development plan (Special)

61897 Approves development plan (Special)

61898 Development of blighted property (Special)

61899 Approves development plan (Special)

61900 Development of blighted property (Special)

61901 Approves development plan (Special)

61902 Approves development plan (Special)

61903 Development of blighted property (Special)

61904 Approves development plan (Special)

61905 Development of blighted property (Special)

61906 Approves development plan (Special)

61907 Development of blighted property (Special)

61908 Approves development plan (Special)

61909 Development of blighted property (Special)

61910 Approves development plan (Special)

61911 Rezone (Special)

61912 Sidewalk construction appropriation (Special)

61913 Debarment of certain bidders from public contracts (6.16.010, 6.16.020, 6.16.030)

61914 Appropriation for traffic signal improvement (Special)

61915 Contract to resurface street (Special)

61916 Reconnection of utility service (25.56.010, 25.56.020)

61917 Proposed amendment to § 29 of Art. XV of Charter, purchasing (Failed)

61918 Development of blighted property (Special)

61919 Development of blighted property (Special)

61920 Development of blighted property (Special)

61921 Development of blighted property (Special)

61922 Development of blighted property (Special)

61923 Development of blighted property (Special)

61924 Approves development plan (Special)

61925 Amends Ord. 58776, development of blighted property (Special)

61926 Rezone (Special)

61927 Development of blighted property (Special)

61928 Appropriation from convention and tourism fund (Special)

61929 Development of blighted property (Special)

61930 Development of blighted property (Special)

61931 Development of blighted property (Special)

61932 Development of blighted property (Special)

61933 Development of blighted property (Special)

61934 Approves development plan (Special)

61935 Approves development plan (Special)

61936 Approves development plan (Special)

61937 Approves development plan (Special)

61938 Street closure (Special)

61939 Development of blighted property (Special)

61940 Approves development plan (Special)

61941 Agency agreement (Special)

61942 Development of blighted property (Special)

61943 Development of blighted property (Special)

61944 Development of blighted property (Special)

61945 Approves development plan (Special)

61946 Development of blighted property (Special)

61947 Approves development plan (Special)

61948 Development of blighted property (Special)

61949 Approves development plan (Special)

61950 Development of blighted property (Special)

61951	Development of blighted property (Special)
61952	Personnel records (4.15.010, 4.15.020, 4.15.030)
61953	Rezone (Special)
61954	Repeals Ord. 61691, street closure (Repealer)
61955	Appropriation from airport development fund (Special)
61956	Appropriation from airport development fund (Special)
61957	Appropriation from airport development fund (Special)
61958	Appropriation from airport development fund (Special)
61959	Amends Ord. 59762, street closure; repeals Ord. 61753 (Special)
61960	Appropriation from convention and tourism fund (Special)
61961	Designates stop intersection (Special)
61962	Amends Ord. 61549, street vacation (Special)
61963	Vacation of public surface rights (Special)
61964	Vacation of public surface rights (Special)
61965	Vacation of public surface rights (Special)
61966	Vacation of public surface rights (Special)
61967	Vacation of public surface rights (Special)
61968	Minimum services at service stations (8.83.010—8.83.060)
61969	Amends §§ 3.64.030, 5.36.010, 5.36.020, 5.36.030, tourism and convention bureau (3.64.030, 5.36.005, 5.36.010, 5.36.020, 5.36.030)
61970	Investigation of retirements in Northern Ireland (Not codified)
61971	Petition on operation of roominghouse (11.72.010—11.72.080)
61972	Appropriation (Special)
61973	Appropriation from convention and tourism fund (Special)
61974	Appropriation from convention and tourism fund (Special)
61975	Declaration of historical monument (Not codified)
61976	Early retirement (Repealed by 64833)
61977	Repeals and replaces Ch. 15.54, conduct at athletic events (15.54.010—15.54.060)
61978	Appropriation (Special)
61979	Lease of property (Special)
61980	Firemen's retirement system (4.18.350, 4.18.355, 4.18.360, 4.18.365, 4.18.370, 4.18.375, 4.18.380, 4.18.385)
61981	Adopts building codes (25.06)
61982	Development of blighted property (Special)
61983	Sale of liquor or nonintoxicating beer to minor (15.116.015)
61984	Street closure (Special)
61985	Vacation of public surface rights (Special)
61986	Prohibited parking (17.24.070)
61987	Parking-stacking devices prohibited (17.86.010, 17.86.020)
61988	Funds for park land (5.74.010—5.74.080)
61989	Vacation of public surface rights; repeals Ord. 61884 (Special)
61990	Amends Ord. 61823, vacation of public sur-face rights (Special)
61991	Supplemental agreement for additional warning device (Special)
61992	Development of blighted property (Special)
61993	Development of blighted property (Special)
61994	Development of blighted property (Special)
61995	Development of blighted property (Special)
61996	Development of blighted property (Special)
61997	Appropriation (Special)
61998	Supplemental agreement for additional warning rights (Special)

61999 City civil service; repeals Ord. 61248 (4.16.202)

62000 Repeals and replaces § 4.34.010, Office of Recorder Deeds salaries (4.34.010, 4.34.020, 4.34.030)

62001 Sheriff's Office employee; repeals Ord. 61279 (4.36.010, 4.36.020, 4.36.030, 4.36.040, 4.36.050, 4.36.052, 4.36.054, 4.36.056, 4.36.058, 4.36.059, 4.36.065)

62002 Collector of Revenue employee salaries; repeals Ord. 61278 (Repealed by 62664)

62003 License Collector employee salaries (4.28.010—4.28.070)

62004 Circuit Attorney officer employee salaries (4.48.010—4.48.040)

62005 Municipal Tax Section employee salaries (4.46.010—4.46.110)

62006 Treasurer's Office employee salaries (4.26.020, 4.26.021, 4.26.022, 4.26.023)

62007 Parking Meter Division employee salaries (4.30.010, 4.30.020, 4.30.021, 4.30.022)

62008 Vacation of public surface rights (Special)

62009 Vacation of public surface rights (Special)

62010 Vacation of public surface rights (Special)

62011 Approves development plan (Special)

62012 Development of blighted property (Special)

62013 Approves development plan (Special)

62014 Sale of real estate (Special)

62015 Repeals and replaces § 2 of Ord. 59002, ad valorem tax (Special)

62016 Repeals and replaces §§ 10.04.010, 10.04.050, 10.04.060, 10.04.070, 10.04.080, 10.04.090, 10.04.100, 10.04.120(B), (D), 10.04.150, 10.04.160, 10.40.180, 10.04.200, 10.04.220, 10.04.230, dogs and cats (Repealed by 65206)

62017 Airport concession agreement (Special)

62018 Airport concession agreement (Special)

62019 Airport concession agreement (Special)

62020 Airport concession agreement (Special)

62021 Airport concession agreement (Special)

62022 Lease agreement (Special)

62023 Supplemental appropriation (Special)

62024 Supplemental appropriation (Special)

62025 Real estate acquisition (Special)

62026 Lease agreement (Special)

62027 Lease agreement (Special)

62028 Lease agreement (Repealed by 64532)

62029 Lease agreement (Special)

62030 Lease agreement (Special)

62031 Conveyance of real property (Special)

62032 Appropriation (Special)

62033 Lease-purchase agreement (Special)

62034 Borrowing of funds (Special)

62035 Contract for study of minority and women's businesses (Special)

62036 Residential parking zones (17.90.010—17.90.050)

62037 Amends § 5.58.010, supply commissioner (5.58.010)

62038 Development of blighted property (Special)

62039 Development of blighted property (Special)

62040 Development of blighted property (Special)

62041 Development of blighted property (Special)

62042 Adds §§ 3.50.025 and 3.50.060; repeals and replaces §§ 3.50.010 and 3.50.020, municipal reference library (3.50.010, 3.50.020, 3.50.025, 3.50.060)

62043 Redevelopment plan (Special)

62044 Redevelopment project (Special)

62045 Financing of redevelopment project area (Special)

62046 Extension and improvement of municipal water works (Special)

62047 Repeals and replaces §§ 17.62.210, 17.62.220 and 17.62.230, parking meter division (17.62.210, 17.62.220, 17.62.230)

62048	Expansion of Cervantes Center (Special)
62049	Amends § 17.76.020, parking permits (17.76.020)
62050	Amends § 11.18.070, litter from vehicle (11.18.070, 11.18.075)
62051	Renames Board of Aldermen chambers (Not codified)
62052	Vacation of public surface rights (Special)
62053	Amends § 17.52.290, vehicle license (17.52.290)
62054	Development of blighted property (Special)
62055	Approves development plan (Special)
62056	Development of blighted property (Special)
62057	Development of blighted property (Special)
62059	Development of blighted property (Special)
62060	Development of blighted property (Special)
62061	Development of blighted property (Special)
62062	Sale of real estate (Special)
62063	Development of blighted property (Special)
62064	Development of blighted property (Special)
62065	Development of blighted property (Special)
62066	Development of blighted property (Special)
62067	Vacation of public rights-of-way (Special)
62068	Amends § 17.52.270, driver-chauffeur license (17.52.270)
62069	Amends § 17.32.010, inspection of vehicles (17.32.010)
62070	Proposed retail sales tax (Failed)
62071	Natural gas transportation license fee (23.41.010—23.41.060)
62072	Nonbinding proposition on radioactive storage (Not codified)
62073	Appropriations (Special)
62074	Sale of real estate (Special)
62075	Development of blighted property (Special)
62076	Development of blighted property (Special)
62077	Approves development plan (Special)
62078	Development of blighted property (Special)
62079	Approves development plan (Special)
62080	Development of blighted property (Special)
62081	Approves development plan (Special)
62082	Amends Ord. 60906, development plan (Special)
62083	Development of blighted property (Special)
62084	Approves development plan (Special)
62085	Development of blighted property (Special)
62086	Approves development plan (Special)
62087	Development of blighted property (Special)
62088	Approves development plan (Special)
62089	Amends Ord. 58493, airport improvement (Special)
62090	Rezone (Special)
62091	Easement deed (Special)
62092	Appropriation (Special)
62093	Sale of real estate (Special)
62094	Vacation of public surface rights (Special)
62095	Appropriation (Special)
62096	Airport public work and improvement program (Special)
62097	Grant agreement (Special)
62098	Grant agreement (Special)
62099	Development of blighted property (Special)
62100	Development of blighted property (Special)

62101 Repeals and replaces §§ 17.62.010, 17.62.050, 17.62.070, 17.62.080, 17.62.150, 17.62.160, 17.62.180, 17.62.240, 17.62.250, 17.62.270, 17.62.320; repeals §§ 17.62.090, 17.62.110, 17.62.190, 17.62.260, 17.62.340, parking commission (17.62.010, 17.62.050, 17.62.070, 17.62.080, 17.62.100, 17.62.140, 17.62.150, 17.62.160, 17.62.180, 17.62.240, 17.62.250, 17.62.270, 17.62.320)

62102 Treasurer's office salaries; repeals Ord. 62006 (4.26.020, 4.26.021, 4.26.022, 4.26.023)

62103 Parking division salaries; repeals Ord. 62007 (4.30.010, 4.30.020, 4.30.021, 4.30.022)

62104 Development of blighted property (Special)

62105 Designates stop intersection (Special)

62106 Amends Ord. 61999, cash awards incentive (4.10.250)

62107 Appropriation (Special)

62108 Park improvement; repeals Ord. 61527 (Special)

62109 Development of blighted property (Special)

62110 Purchase of real property (Special)

62111 Designates stop intersection (Special)

62112 Vacation of public surface rights (Special)

62113 Vacation of public surface rights (Special)

62114 Easement agreement (Special)

62115 Easement agreement (Special)

62116 Sidewalk easement (Special)

62117 Sewer easement (Special)

62118 Stormwater improvement easement (Special)

62119 Application for Housing and Community Development Act funding (Special)

62120 Vacation of public surface rights (Special)

62121 Development of blighted property (Special)

62122 Lease agreement (Special)

62123 Vacation of public right (Special)

62124 Service contracts (6.16.010—6.16.030)

62125 Development of blighted property (Special)

62126 Rezone (Special)

62127 Development of blighted property (Special)

62128 Development of blighted property (Special)

62129 Development of blighted property (Special)

62130 Approves development plan (Special)

62131 Development of blighted property (Special)

62132 Approves development plan (Special)

62133 Development of blighted property (Special)

62134 Approves development plan (Special)

62135 Development of blighted property (Special)

62136 Development of blighted property (Special)

62137 Development of blighted property (Special)

62138 Development of blighted property (Special)

62139 Approves development plan (Special)

62140 Approves development plan (Special)

62141 Enterprise zone designation (Special)

62142 Street closure (Special)

62143 Development of blighted property (Special)

62144 Development of blighted property (Special)

62145 Development of blighted property (Special)

62146 Development of blighted property (Special)

62147 Repeals and replaces §§ 5 and 6 Ord. 61364, sewer line repair (Repealed by 62680)

62148 Sale of real estate (Special)

62149 Grant agreement (Special)

62150 Appropriation (Special)

62151 Supplemental appropriation (Special)

62152 Grant agreement (Special)

62153 Street closure (Special)

62154 Development of blighted property (Special)

62155 Approves development plan (Special)

62156 Development of blighted property (Special)

62157 Development of blighted property (Special)

62158 Development of blighted property (Special)

62159 Approves development plan (Special)

62160 Development of blighted property (Special)

62161 Approves development plan (Special)

62162 Development of blighted property (Special)

62163 Approves development plan (Special)

62164 Development of blighted property (Special)

62165 Development of blighted property (Special)

62166 Approves development plan (Special)

62167 Development of blighted property (Special)

62168 Approves development plan (Special)

62169 Street closure (Special)

62170 Development of blighted property (Special)

62171 Development of blighted property (Special)

62172 Development of blighted property (Special)

62173 Controlled substances (11.60.200, 11.60.210, 11.60.220)

62174 Development of blighted property (Special)

62175 Development of blighted property (Special)

62176 Development of blighted property (Special)

62177 Development of blighted property (Special)

62178 Development of blighted property (Special)

62179 Development of blighted property (Special)

62180 Development of blighted property (Special)

62181 Development of blighted property (Special)

62182 Development of blighted property (Special)

62183 Repeals and replaces Ch. 26.32, zoning (26.32.010—26.32.100)

62184 Commercial vehicle loading hours (17.23.010, 17.23.020)

62185 Appropriation (Special)

62186 Agreement for housing service program (Special)

62187 Agreement for community outreach service program (Special)

62188 Agreement for teenage health consultant (Special)

62189 Acceptance of AIDS grant (Special)

62190 Agreement for AIDS grant (Special)

62191 Vacation of public surface rights (Special)

62192 Vacation of public surface rights (Special)

62193 Ingress and egress rights (Special)

62194 Ingress and egress rights (Special)

62195 Housing conservation district (Repealed by 67914)

62196 Round Up program excess payment (5.76.010—5.76.050)

62197 Vacation of public surface rights (Special)

62198 Contract for landscape restoration (Special)

62199 Improvement agreement (Special)

62200 Strikes and lock outs (15.158.010—15.158.040)

62201 Vacation of public surface rights (Special)

62202 Development of blighted property (Special)

62203 Approves development plan (Special)

62204 Natural gas transportation license fee (23.41.010—23.41.060)

62205 Amends § 2 of Ord. 62033, lease agreement (Special)

62206 Amends Ord. 57555, repair of residential walks (20.26.290)

62207 Easement for stormwater improvement (Special)

62208 Development of blighted property (Special)

62209 Agency on training and employment; repeals Ords. 57035 and 57270 (3.78.010, 3.78.020, 3.78.030)

62210 Development of blighted property (Special)

62211 Agreement on AIDS surveillance and control program (Special)

62212 Agreement for comprehensive school health program (Special)

62213 Agreement for AIDS community relations services (Special)

62214 Rezone (Special)

62215 Appropriation (Special)

62216 Amends Ord. 62091, easement deed (Special)

62217 Development of blighted property (Special)

62218 Development of blighted property (Special)

62219 Development of blighted property (Special)

62220 Development of blighted property (Special)

62221 Development of blighted property (Special)

62222 Development of blighted property (Special)

62223 Agreement for transportation project grant (Special)

62224 Appropriation (Special)

62225 Appropriation (Special)

62226 Vacation of public surface rights (Special)

62227 Development of blighted property (Special)

62228 Traffic signal installation (Special)

62229 Traffic signal installation (Special)

62230 Renames Room 208 of City Hall (Not codified)

62231 Designates stop intersection (Special)

62232 Repeals and replaces Ord. 56248, historic district (Repealed by 63327)

62233 Private communication transmission system (23.64.010—23.64.180)

62234 Memorandums of understanding with employees (3.92.010—3.92.120)

62235 Lock box program agreement (Not codified)

62236 Smoking in public buildings (Repealed by 62523)

62237 Development of blighted property (Special)

62238 Repeals and replaces § 1 Ord. 58662, prohibited animals (10.24.010)

62239 Spray paint sales (15.128.010—15.128.030)

62240 Development of blighted property (Special)

62241 Quit claim deed (Special)

62242 Development of blighted property (Special)

62243 Development of blighted property (Special)

62244 Development of blighted property (Special)

62245 Development of blighted property (Special)

62246 Development of blighted property (Special)

62247 Development of blighted property (Special)

62248 Development of blighted property (Special)

62249 Amends Ords. 60906 and 61732, development plan (Special)

62250 Development of blighted property (Special)

62251 Approves development plan (Special)

62252 Development of blighted property (Special)

62253 Development of blighted property (Special)

62254 Development of blighted property (Special)

62255 Lease agreement (Special)

62256 Grant agreement (Special)

62257 Amends § 4 of Ord. 58460, airport landscape maintenance (Special)

62258 Amends § 4 of Ord. 58493, airport maintenance (Special)

62259 Amends § 4 of Ord. 59367, airport maintenance (Special)

62260 Amends § 4 of Ord. 61754, airport maintenance (Special)

62261 Amends § 4 of Ord. 60810, airport maintenance (Special)

62262 Amends § 5 of Ord. 60542, airport maintenance (Special)

62263 Appropriation (Special)

62264 Airport public work and improvement program (Special)

62265 Airport public work and improvement program (Special)

62266 Airport public work and improvement program (Special)

62267 Airport public work and improvement program (Special)

62268 Quit claim deed (Special)

62269 Contract for transportation improvement project (Special)

62270 Grant agreement for juvenile drug treatment (Special)

62271 Grant agreement for hazardous waste inspection (Special)

62272 Appropriation (Special)

62273 Vacation of public rights-of-way (Special)

62274 Hazardous substances; repeals Ord. 59269 (11.64.010—11.64.140)

62275 Grant agreement (Special)

62276 Repeals and replaces §§ 5(e) and 14 of Ord. 59121, solid waste containers (11.02.075, 11.02.155)

62277 Appropriation (Special)

62278 Appropriation (Special)

62279 Approves redevelopment plan (Special)

62280 Redevelopment project (Special)

62281 Adds § 19(d) to Ord. 61999, employees on active military duty (4.10.870)

62282 Development of blighted property (Special)

62283 Development of blighted property (Special)

62284 Appropriation (Special)

62285 Grant agreement (Special)

62286 Grant agreement (Special)

62287 Grant agreement for AIDS surveillance program (Special)

62288 Authorizes agreement with Crusade Against Crime program (Special)

62289 Authorizes agreement with Peter and Paul Community Services, Inc. (Special)

62290 Authorizes agreement with Human Development Corporation (Special)

62291 Grant agreement for low birth weight follow up program (Special)

62292 Prostitution (15.34.010, 15.34.020)

62293 Lease agreement (Special)

62294 Lease agreement (Special)

62295 Lease agreement (Special)

62296 Authorizes grant acceptance for animal welfare (Special)

62297 School attendance by minors (15.20.030)

62298 Authorizes agreement with Missouri Division of Family Services (Special)

62299 Authorizes agreement with Meals-on-Wheels (Special)

62300 Grant agreement with child and adult food care program (Special)

62301 Grant agreement for summer food service program (Special)

62302	Agreement for family health care (Special)
62303	Agreement to fund public health services (Special)
62304	Funds transfer (Special)
62305	Alarm systems; repeals Ord. 58533 (8.13.010—8.13.160)
62306	Vacation of public surface rights (Special)
62307	Vacation of public rights-of-way (Special)
62308	Vacation of public rights-of-way (Special)
62309	Designates stop intersection (Special)
62310	Vacation of public surface rights (Special)
62311	Vacation of public surface rights (Special)
62312	Amends tax abatement agreement (Special)
62313	Development of blighted property (Special)
62314	Vacation of public surface rights (Special)
62315	Designates stop intersection (Special)
62316	Sale of real estate (Special)
62317	Sale of real estate (Special)
62318	Sale of real estate (Special)
62319	Sale of real estate (Special)
62320	Grant for sickle-cell service program (Special)
62321	Designates stop intersection (Special)
62322	Development of blighted property (Special)
62323	Development of blighted property (Special)
62324	Vacation of public surface rights (Special)
62325	Approves development plan (Special)
62326	Development of blighted property (Special)
62327	Development of blighted property (Special)
62328	Designates stop intersection (Special)
62329	Contract for new elevator (Special)
62330	Depositing trash; repeals Ord. 58313 (15.80.010, 15.80.020, 15.80.030)
62331	Drink liquor license moratorium (Not codified)
62332	Treasurer's office salaries; repeals Ord. 62102 (Repealed by 62662)
62333	Parking Division salaries; repeals Ord. 62103 (Repealed by 62663)
62334	Circuit Attorney employee salaries (4.48.010—4.48.050)
62335	Housing conservation district (Repealed by 67914)
62336	Approves development plan (Special)
62337	Approves development plan (Special)
62338	Approves development plan (Special)
62339	Approves development plan (Special)
62340	Repeals and replaces § 4.34.010, recorder of deeds employee salaries (4.34.010—4.34.090)
62341	Repeals and replaces Ch. 4.44, Collector of Revenues employees salaries (Repealed by 62664)
62342	Contract for highway median (Special)
62343	Appropriation (Special)
62344	Repeals and replaces Ord. 62001, Sheriff's Office employees (Repealed by 62665)
62345	License Collector's office employee salaries (Repealed by 62666)
62346	Neighborhood improvement (3.87.010—3.87.090)
62347	Fund release (Special)
62348	Appropriation; repeals Ord. 62092 (Special)
62349	Permit parking (17.61.010, 17.61.020, 17.61.030)
62350	Lease of radio beacon (Special)
62351	Appropriation (Special)
62352	Appropriation (Special)
62353	Grant agreement (Special)
62354	Airport preferential use space permit (Special)

62355	Construction of slanting curbing; repeals Ord. 56770 (20.26.220)
62356	Renumbering addresses on Locust Street (Not codified)
62357	Development of blighted property (Special)
62358	Development of blighted property (Special)
62359	Development of blighted property (Special)
62360	Development of blighted property (Special)
62361	Development of blighted property (Special)
62362	Development of blighted property (Special)
62363	Development of blighted property (Special)
62364	Development of blighted property (Special)
62365	Amends Ord. 59564, water purchase agreement (Special)
62366	Vacation of public surface rights (Special)
62367	Redevelopment plan (Special)
62368	Redevelopment project (Special)
62369	Sale of tax revenue bonds (Special)
62370	Tax increment revenue bonds (Special)
62371	Development of blighted property (Special)
62372	Employee compensation; repeals § 4.18.010 (4.18.010)
62373	Agreement for low-birth weight follow-up program (Special)
62374	Street closure (Special)
62375	Rezone (Special)
62376	Designates stop intersection (Special)
62377	Designates stop intersection (Special)
62378	Designates stop intersection (Special)
62379	Designates stop intersection (Special)
62380	Rezone (Special)
62381	Special election for bond issuance (Special)
62382	Construction in the historic district; repeals and replaces §§ 2, 3 of Ord. 57078 (Special)
62383	Borrowing of funds (Special)
62384	Agreement for refuge health program (Special)
62385	Amends Ord. 61799, convention center project (Special)
62386	Agreement for community outreach program (Special)
62387	Appropriation (Special)
62388	Alfonso J. Cervantes Convention Center and Auditorium Commission (3.62.010)
62389	Lease agreement (Special)
62390	Development of blighted property (Special)
62391	Conflict of interest policy (4.07.010—4.07.050)
62392	Vacation of public rights-of-way (Special)
62393	Establishes curfew for minors in designated Entertainment Area (15.110.040)
62394	Appropriation (Special)
62395	Development of blighted property (Special)
62396	Development of blighted property (Special)
62397	Airport expansion and improvement program (Special)
62398	Development of blighted property (Special)
62399	Development of blighted property (Special)
62400	Development of blighted property (Special)
62401	Development of blighted property (Special)
62402	Development of blighted property (Special)
62403	Development of blighted property (Special)
62404	Housing conservation district (Repealed by 67914)

62405 Lease agreement with Trans World Airlines Inc. (Special)

62406 Airport use agreement with United Airlines Inc. (Special)

62407 Appropriation (Special)

62408 Appropriation (Special)

62409 Appropriation (Special)

62410 Temporary street closure (Special)

62411 Temporary street closure (Special)

62412 Vacation of public surface rights (Special)

62413 Vacation of air rights (Special)

62414 Vacation of public surface rights (Special)

62415 Temporary street closure (Special)

62416 Temporary street closure (Special)

62417 Prohibits issuance of license or permit (Special)

62418 Prohibits issuance of license or permit (Special)

62419 Prohibits issuance of license or permit (Special)

62420 Prohibits issuance of license or permit (Special)

62421 Temporary street closure (Special)

62422 Adds § 14.07.060, microbrewery licenses (14.07.060)

62423 Adds new sections to Ch. 11.32, smoking (11.32.110—11.32.170)

62424 Development of blighted property (Special)

62425 Development of blighted property (Special)

62426 Development of blighted property (Special)

62427 Rezone (Special)

62428 Development of blighted property (Special)

62429 Development of blighted property (Special)

62430 Agreement with Missouri Department of Health (Special)

62431 Development of blighted property (Special)

62432 Development of blighted property (Special)

62433 Development of blighted property (Special)

62434 Development of blighted property (Special)

62435 Development of blighted property (Special)

62436 Development of blighted property (Special)

62437 Development of blighted property (Special)

62438 Agreement with Department of Housing and Urban Development (Special)

62439 Designates stop intersection (Special)

62440 Traffic signal installation (Special)

62441 Development of blighted property (Special)

62442 Development of blighted property (Special)

62443 Development of blighted property (Special)

62444 Development of blighted property (Special)

62445 Development of blighted property (Special)

62446 Development of blighted property (Special)

62447 Appropriation (Special)

62448 Designates housing conservation district (Special)

62449 Designates housing conservation district (Repealed by 67914)

62450 Vacation of public surface rights (Special)

62451 Vacation of public rights-of-way (Special)

62452 Vacation of public rights-of-way (Special)

62453 Street closure (Special)

62454 Designates stop intersection (Special)

62455 Designates stop intersection (Special)

62456 Development of blighted property (Special)

62457 Street name change (Special)
62458 Prohibited parking (Special)
62459 Street closure (Repealed by 67610)
62460 Street closure (Special)
62461 Street closure (Special)
62462 Street closure (Special)
62463 Street closure (Special)
62464 Street closure (Special)
62465 Street closure (Special)
62466 Street closure (Repealed by 62632)
62467 Amends Ord. 59884, commercial site extension plan (Special)
62468 Development of blighted property (Special)
62469 Traffic signal installation (Special)
62470 Agreement amendment for HIV/AIDS surveillance program (Special)
62471 Agreement for grant to fund Alzheimer's Disease research program (Special)
62472 Agreement for grant to fund maternal and child health system (Special)
62473 Formation of solid waste management district (11.01)
62474 Appropriation (Special)
62475 Nonassignment ordinance relating to airport (18.10)
62476 Repeals and replaces Ch. 2.12, ward boundaries (Repealed by 65377)
62477 Adds Ch. 3.83, Tax Increment Financing Commission (3.83)
62478 Development of blighted property (Special)
62479 Benches and shelters in public rights-of-way (20.51)
62480 Prohibited parking (Special)
62481 Adopts relocation policy (24.01)
62482 Development of blighted property (Special)
62483 Vacation of public rights-of-way (Special)
62484 Rezone (Special)
62485 Development of blighted property (Special)
62486 Development of blighted property (Special)
62487 Amends Ord. 60452, expansion and improvement program (Special)
62488 Authorizes easement for construction of drainage improvements (Special)
62489 Appropriation (Special)
62490 Appropriation (Special)
62491 Designates school stop intersection (Special)
62492 Amends Ord. 60664, BOCA National Building Code (Repealed by 63610)
62493 Development of blighted property (Special)
62494 Development of blighted property (Special)
62495 Vacation of public surface rights (Special)
62496 Vacation of public surface rights (Special)
62497 Authorizes lease of land situated next to Art Museum (Special)
62498 Appropriation (Special)
62499 Authorizes award of contracts for airport layout plan (Special)
62500 Authorizes public works and improvement plan at airport (Special)
62501 Adoption of passenger facility charge (Special)
62502 Street closure (Special)
62503 Development of blighted property (Special)
62504 Development of blighted property (Special)
62505 Appropriation (Special)
62506 Appropriation (Special)
62507 Development of blighted property (Special)
62508 Development of blighted property (Special)
62509 Development of blighted property (Special)
62510 Development of blighted property (Special)

62511 Development of blighted property (Special)

62512 Development of blighted property (Special)

62513 Development of blighted property (Special)

62514 Development of blighted property (Special)

62515 Amends Ord. 56912, entertainment license tax (8.08.010, 8.08.050)

62516 Repeals and replaces § 5.22.150, promotor or booking agent earnings tax (5.55.150)

62517 Exempts certain organizations from graduated business license tax (8.07.041)

62518 Repeals and replaces Ord. 60104, port maintenance fund (5.38)

62519 Appropriation (Special)

62520 Approves lease agreement with Convention Center Hotel Inc. (Special)

62521 Development of blighted property (Special)

62522 Development of blighted property (Special)

62523 Repeals and replaces Ord. 62236, smoking in public buildings (11.32.050—11.32.100)

62524 Amends § 26.76.030, zoning (26.76.030)

62525 Designates stop intersection (Special)

62526 Contract amendment for grant to fund sexually transmitted disease program (Special)

62527 Development of blighted property (Special)

62528 Vacation of public surface rights (Special)

62529 Designates stop intersection (Special)

62530 Amends § 17.30.040, issuance of parking permits (17.30.040)

62531 Appropriation (Special)

62532 Street closure (Special)

62533 Repeals and replaces Ord. 61396, possession of glue by minors (11.60.010)

62534 Development of blighted property (Special)

62535 Appropriation (Special)

62536 Authorizes lease agreement with Eagle Marine Industries, Inc. (Special)

62537 Authorizes lease agreement with Slay Industries (Special)

62538 Termination of certain leases (Special)

62539 Sale of certain real estate to Stitch-Tec Company (Repealed by 64236)

62540 Designates stop intersection (Special)

62541 Vacation of public surface rights (Special)

62542 Vacation of public surface rights (Special)

62543 Vacation of public surface rights (Special)

62544 Vacation of public surface rights (Special)

62545 Designates stop intersection (Special)

62546 Designates stop intersection (Special)

62547 Vacation of public surface rights (Special)

62548 Vacation of public surface rights (Special)

62549 Development of blighted property (Special)

62550 Approves fair share agreement with AFL-CIO, Local 410 (Special)

62551 Repeals Ord. 61797 (Repealer)

62552 Authorizes the construction and repair of certain city facilities (Special)

62553 Development of blighted property (Special)

62554 Development of blighted property (Special)

62555 Development of blighted property (Special)

62556 Development of blighted property (Special)

62557 Development of blighted property (Special)

62558 Designates stop intersection (Special)

62559	Authorizes specific city construction programs (Special)
62560	Amends Art. 8, § 8, of city charter, payment of salaries (Charter, Art. VIII)
62561	Designates housing conservation district (Repealed by 67914)
62562	Vacation of public rights-of-way (Special)
62563	Vacation of public rights-of-way (Special)
62564	Amends § 8.02.010, city licenses (8.02)
62565	Vacation of public surface rights (Special)
62566	Regulations pertaining to bed and breakfast establishments (8.25)
62567	Amends Ord. 61398, vendors at fairs and festivals (8.109.020)
62568	Authorizes lease of land with Shelton Industrial Pattern Inc. (Special)
62569	Authorizes provision of radio system for city water division (Special)
62570	Repeals and replaces Ch. 11.30, regulations for operation of rendering establishments (11.30.010—11.30.140)
62571	Provides for improvements to municipal water works system (Special)
62572	Provides for improvements to chemical laboratory (Special)
62573	Provides for improvements to city water division building (Special)
62574	Provides for repairs to city water treatment plant (Special)
62575	Provides for repairs to city water treatment plant (Special)
62576	Provides for repairs to city water division property (Special)
62577	Provides for repairs to city water division reservoir (Special)
62578	Repeals and replaces § 8 of Ord. 60643, graduated business license tax (8.07.040)
62579	Regulations for licensing mechanical contractors and pipefitters (25.10)
62580	Development of blighted property (Special)
62581	Development of blighted property (Special)
62582	Development of blighted property (Special)
62583	Development of blighted property (Special)
62584	Development of blighted property (Special)
62585	Development of blighted property (Special)
62586	Development of blighted property (Special)
62587	Development of blighted property (Special)
62588	Repeals and replaces Chs. 26.08, 26.20, 26.28 and 26.40, zoning (26.08, 26,20, 26.28, 26.40)
62589	Allows for establishment of bed and breakfast districts (26.66)
62590	Development of blighted property (Special)
62591	Development of blighted property (Special)
62592	Development of blighted property (Special)
62593	Development of blighted property (Special)
62594	Development of blighted property (Special)
62595	Development of blighted property (Special)
62596	Development of blighted property (Special)
62597	Development of blighted property (Special)
62598	Development of blighted property (Special)
62599	Development of blighted property (Special)
62600	Development of blighted property (Special)
62601	Development of blighted property (Special)
62602	Development of blighted property (Special)

62603 Assigns use of Kennedy Room to board of aldermen of city (Special)

62604 Amends lease agreement between city and McDonnell Douglas Corporation (Special)

62605 Authorizes execution of space permit document (Special)

62606 Authorizes contract for airport concession (Special)

62607 Authorizes contract for airport public parking facilities (Special)

62608 Repeals and replaces § 20.30.140(A), inspection fee for excavation (20.30.140(A))

62609 Amends Ord. 60664, application for occupancy permit fee schedule (Repealed by 63610)

62610 Amends Ord. 60826, annual fee inspections (Not codified)

62611 Repeals and replaces Ord. 61055, mechanical permits and inspection fees (Repealed by 63621)

62612 Amends Ord. 61751, electrical inspection fees (Repealed by 63150)

62613 Amends Ord. 61981, fire prevention code (25.06)

62614 Development of blighted property (Special)

62615 Development of blighted property (Special)

62616 Development of blighted property (Special)

62617 Home occupation registration fee (8.07)

62618 Amends lease agreement between city and American Golf Corporation (Special)

62619 Revocation and refusal to issue licenses (8.02.071—8.02.075)

62620 Appropriation (Special)

62621 Amends lease of Kiel Auditorium (Special)

62622 Establishes central west end north special business district (Not codified)

62623 Tax levy proposal (Special)

62624 Issuance and sale of bonds by St. Louis Municipal Finance Corporation (Special)

62625 Prohibited parking (Special)

62626 Amends airport noise mitigation lease/purchase agreement (Special)

62627 Agreement for airport office space rental (Special)

62628 Street closure (Special)

62629 Street closure (Special)

62630 Appropriation (Special)

62631 Provides for borrowing of funds (Special)

62632 Repeals Ord. 62466, street closure (Special)

62633 Designates stop intersection (Special)

62634 Designates stop intersection (Special)

62635 Amends Ord. 57316, lease of mooring rights (Repealed by 64532)

62636 Amends Ord. 59347, lease of mooring rights (Special)

62637 Amends Ord. 60893, lease of mooring rights (Special)

62638 Amends Ord. 58940, lease of mooring rights (Special)

62639 Appropriation (Special)

62640 Amends Ord. 59787, lease of mooring rights (Special)

62641 Amends Ord. 60890, lease of mooring rights (Special)

62642 Vacation of public surface rights (Special)

62643 Vacation of public surface rights (Special)

62644 Vacation of public surface rights (Special)

62645 Vacation of public surface rights (Special)

62646 Vacation of public surface rights (Special)

62647 Enterprise zone designation (Special)

62648 Street closure (Special)

62649 Vacation of public surface rights (Special)

62650 Appropriation (Special)

62651 Grant agreement (Special)

62652 Public work and improvement program at airport (Special)

62653 Appropriation (Special)

62654 Repeals Ord. 62316, sale of real estate (Special)

62655 Appropriation (Special)

62656 Repeals and replaces §§ 14.01.280, 14.06.100, 14.06.120, 14.06.210, 14.06.250, 14.08.010, 14.08.040, 14.08.050, 14.08.060, 14.08.090 and 14.08.190, liquor control laws (14.01.280, 14.06.100, 14.06.120, 14.06.210, 14.06.250, 14.08.010, 14.08.040, 14.08.050, 14.08.060, 14.08.090, 14.08.190)

62657 Repeals and replaces Ord. 61999, city civil service (Ch. 4.10)

62658 Contract amendment with Missouri Department of Health (Special)

62659 Contract amendment with Missouri Department of Health (Special)

62660 Contract amendment with Washington University (Special)

62661 Contract with Missouri Department of Health (Special)

62662 Repeals and replaces Ord. 62332, treasurer's office salaries (4.26)

62663 Repeals and replaces Ord. 62333, Parking Division salaries (4.30)

62664 Repeals and replaces Ord. 62341, Collector of Revenue's employees salaries (4.44)

62665 Repeals and replaces Ord. 62344, Sheriff's Office employees salaries (4.36)

62666 Repeals and replaces Ord. 62345, License Collector's office employees salaries (4.28)

62667 Amends Ord. 62334, grades and salaries for Circuit Attorney employees (4.48)

62668 Repeals and replaces § 4.34.010, Recorder of Deeds employees salaries (4.34.010)

62669 Contract with Missouri Department of Health (Special)

62670 Contract with Missouri Department of Health (Special)

62671 Contract amendment with Missouri Department of Health (Special)

62672 Proposition to allow licensing of excursion gambling boats (Special)

62673 Agreement with Missouri Department of Health (Special)

62674 Approves redevelopment plan (Special)

62675 Agreement with Missouri Department of Health (Special)

62676 Agreement with Missouri Department of Health (Special)

62677 Appropriation (Special)

62678 Appropriation (Special)

62679 Contract for airport concession (Special)

62680 Amends Ord. 61364; repeals Ord. 62147, lateral sewer service lines (23.40.020, 23.40.050, 23.40.060, 23.40.120)

62681 Repeals and replaces § 3 of Ord. 62613, fire prevention code (25.06)

62682 Amends § 3 of Ord. 60826, board and committee fees (Not codified)

62683 Repeals and replaces § 11.62.350, fees charged by Bureau of Vital Statistics (11.62.350)

62684 Designates stop intersection (Special)

62685 Development of blighted property (Special)

62686 Vacation of public surface rights (Special)

62687 Vacation of public surface rights (Special)

62688 Vacation of public surface rights (Special)

62689 Vacation of public surface rights (Special)

62690 Vacation of public surface rights (Special)

62691 Vacation of public surface rights (Special)

62692 Designates stop intersection (Special)

62693 Establishes telephone informational service (Not codified)

62694 Nonbinding proposition on establishment of a Conservation district (Special)

62695 Development of blighted property (Special)

62696 Designates stop intersection (Special)

62697 Agreement with Washington University (Special)

62698 Development of blighted property (Special)

62699 Development of blighted property (Special)

62700 Development of blighted property (Special)

62701 Permits outdoor advertising on Kiel Center Arena (24.44.045)

62702 Rezone (Special)

62703 Development of blighted property (Special)

62704 Development of blighted property (Special)

62705 Development of blighted property (Special)

62706 Development of blighted property (Special)

62707 Development of blighted property (Special)

62708 Agreement with St. Louis County Water Company (Special)

62709 Appropriation (Special)

62710 Repeals and replaces Ch. 3.44; repeals Ords. 45184, 50553, 51512, 51635, 52328, 57173 and 58701, civil rights enforcement agency (Repealed by 66088)

62711 Amends § 6 of Ord. 60956, development plan (Special)

62712 Repeals and replaces §§ 11 and 12 of Ord. 62579, licensing of mechanical contractors and pipefitters (Not codified)

62713 Lease of mooring rights (Special)

62714 Appropriation (Special)

62715 Grant agreement (Special)

62716 Grant agreement (Special)

62717 Contract with Southwestern Bell Telephone (Special)

62718 Lease of mooring rights (Repealed by 64474)

62719 Repeals and replaces §§ 4.16.200, 4.16.205 and 4.16.210, calculation of pensions (Repealed by 64833)

62720 Development of blighted property (Special)

62721 Development of blighted property (Special)

62722 Development of blighted property (Special)

62723 Lease-purchase agreement for Kennedy Skill Center (Special)

62724 Development of blighted property (Special)

62725 Development of blighted property (Special)

62726 Development of blighted property (Special)

62727 Development of blighted property (Special)

62728 Development of blighted property (Special)

62729 Development of blighted property (Special)

62730 Development of blighted property (Special)

62731 Development of blighted property (Special)

62732 Development of blighted property (Special)

62733 Development of blighted property (Special)

62734 Development of blighted property (Special)

62735 Contract amendment with Missouri Department of Health (Special)

62736 Development of blighted property (Special)

62737	Development of blighted property (Special)
62738	Amends development plan (Special)
62739	Development of blighted property (Special)
62740	Contract amendment with Missouri Department of Health (Special)
62741	Persons convicted of alcohol or drug related traffic offenses to reimburse police department (17.40.030)
62742	Issuance of bonds to finance improvement of city airports (Special)
62743	Street closure (Repealed by 63211)
62744	Street closure (Special)
62745	Development of blighted property (Special)
62746	Development of blighted property (Special)
62747	Development of blighted property (Special)
62748	Development of blighted property (Special)
62749	Vacation of public rights-of-way (Special)
62750	Street closure (Special)
62751	Provides for additional court cost (3.08.385)
62752	Designates stop intersection (Special)
62753	Street closure (Special)
62754	Vacation of public rights-of-way (Special)
62755	Designates stop intersection (Special)
62756	Vacation of public surface rights (Special)
62757	Vacation of public surface rights (Special)
62758	Vacation of public surface rights (Special)
62759	Designates stop intersection (Special)
62760	Vacation of public surface rights (Special)
62761	Airport concession agreement (Special)
62762	Appropriation (Special)
62763	Public works and improvement program at airport (Special)
62764	Appropriation (Special)
62765	Nuisances maintained by owners of real property or their tenants (11.59)
62766	Development of blighted property (Special)
62767	Development of blighted property (Special)
62768	Development of blighted property (Special)
62769	Development of blighted property (Special)
62770	Development of blighted property (Special)
62771	Development of blighted property (Special)
62772	Development of blighted property (Special)
62773	Development of blighted property (Special)
62774	Development of blighted property (Special)
62775	Development of blighted property (Special)
62776	Repeals and replaces §§ 8 and 16 of Ord. 60935, abandoned vehicles (17.56.070, 17.56.150)
62777	Designates stop intersection (Special)
62778	Designates stop intersection (Special)
62779	Prohibits operation of motor vehicles on City streets without maintaining financial responsibility for such use (17.53.010—17.53.070)
62780	Designation of Housing Conservation District (Repealed by 67914)
62781	Development of blighted property (Special)
62782	Development of blighted property (Special)
62783	Authorizes construction of Natural Bridge Avenue Viaduct (Special)
62784	Appropriation (Special)

62785 Establishes fee for checks returned to City and county offices because of insufficient funds (3.02.060)

62786 Sale of certain city real estate (Special)

62787 Street closure (Special)

62788 Street name change (Special)

62789 Development of blighted property (Special)

62790 Development of blighted property (Special)

62791 Development of blighted property (Special)

62792 Repeals and replaces §§ 1, 2 and subsection 8 of § 4 of Ord. 61249; repeals and replaces § 59.060 of Ord. 57354; repeals paragraph 3 of § 1 of Ord. 58694, retirement conditions (Repealed by 64833)

62793 Contract with National Park Service (Special)

62794 Development of blighted property (Special)

62795 Development of blighted property (Special)

62796 Rezone (Special)

62797 Development of blighted property (Special)

62798 Development of blighted property (Special)

62799 Development of blighted property (Special)

62800 Development of blighted property (Special)

62801 Funeral expenses for fire fighters (4.18)

62802 Proposition to repeal present hotel license fee (Special)

62803 Agreement with U.S. Department of Justice (Special)

62804 Designates stop intersection (Special)

62805 Development of blighted property (Special)

62806 Development of blighted property (Special)

62807 Development of blighted property (Special)

62808 Development of blighted property (Special)

62809 Development of blighted property (Special)

62810 Development of blighted property (Special)

62811 Development of blighted property (Special)

62812 Development of blighted property (Special)

62813 Development of blighted property (Special)

62814 Development of blighted property (Special)

62815 Development of blighted property (Special)

62816 Development of blighted property (Special)

62817 Development of blighted property (Special)

62818 Development of blighted property (Special)

62819 Development of blighted property (Special)

62820 Development of blighted property (Special)

62821 Development of blighted property (Special)

62822 Designates stop intersection (Special)

62823 Street closure (Special)

62824 Authorizes construction on the Eads Bridge (Special)

62825 Development of blighted property (Special)

62826 Vacation of public rights-of-way (Special)

62827 Contract with the Missouri Department of Health (Special)

62828 Rezone (Special)

62829 Authorizes improvement of the Municipal Water Works System (Special)

62830 Charge on building permits issued (Special)

62831	Proposal authorizing issuance of bonds for improvement of municipal waterworks system (Special)
62832	Street closure (Special)
62833	Designates stop intersection (Special)
62834	Establishes bed and breakfast district (Special)
62835	Establishes bed and breakfast district (Special)
62836	Accessibility of stop boxes (23.04.185)
62837	Vacation of public surface rights (Special)
62838	Street closure (Special)
62839	Rededication of land for public surface rights (Special)
62840	Vacation of public rights-of-way (Special)
62841	Vacation of public surface rights (Special)
62842	Vacation of public surface rights (Special)
62843	Vacation of public surface rights (Special)
62844	Vacation of public surface rights (Special)
62845	Vacation of public surface rights (Special)
62846	Vacation of public surface rights (Special)
62847	Street closure (Special)
62848	Vacation of public surface rights (Special)
62849	Dedication of land for the improvement of Interstate Highway 70 (Special)
62850	Adopts grant agreement (Special)
62851	Transfer of funds (Special)
62852	Authorizes contracts for design of Multimodal Station (Special)
62853	Raising and keeping of certain animals; repeals Ord. 48797; repeals §§ 10.20.010 and 10.20.020 (10.20.010, 10.20.020)
62854	Development of blighted property (Special)
62855	Development of blighted property (Special)
62856	Development of blighted property (Special)
62857	Designates church stop sign (Special)
62858	Rezone (Special)
62859	Designates stop intersection (Special)
62860	Development of blighted property (Special)
62861	Development of blighted property (Special)
62862	Development of blighted property (Special)
62863	Development of blighted property (Special)
62864	Development of blighted property (Special)
62865	Development of blighted property (Special)
62866	Development of blighted property (Special)
62867	Development of blighted property (Special)
62868	Development of blighted property (Special)
62869	Development of blighted property (Special)
62870	Development of blighted property (Special)
62871	Street name change (Special)
62872	Vacation of public surface rights (Special)
62873	Repeals Ord. 61814, street opened (Special)
62874	Contract with Missouri Division of Family Services (Special)
62875	Relocation of entrance barricades (Special)
62876	Designation of Housing Conservation District (Repealed by 67914)
62877	Designates stop intersection (Special)
62878	Provides for public work (Special)
62879	Designates Housing Conservation District (Repealed by 67914)

62880 Vacation of air rights (Special)
62881 Street closure (Special)
62882 Development of blighted property (Special)
62883 Budget for fiscal year 1993/94 (Special)
62884 Submission to voters (Special)
62885 Submission to voters (Special)
62886 Repeals in part and restates in part Ord. 62647, enterprise zone designation (Special)
62887 Housing conservation districts; repeals Ord. 61540 (25.56.010—25.56.140)
62888 Appropriation (Special)
62889 Contract with Missouri Department of Health (Special)
62890 Contract with Missouri Department of Health (Special)
62891 Bond issuance (Special)
62892 Easement agreement (Special)
62893 Lease agreement (Special)
62894 Repeals and replaces § 16.16.030(E), city workhouse (16.16.030)
62895 Designates stop intersection (Special)
62896 Redevelopment of blighted area (Special)
62897 Redevelopment of blighted area (Special)
62898 Establishes stop intersection (Special)
62899 Establishes stop intersection (Special)
62900 Establishes stop intersection (Special)
62901 Vacation of all public rights (Special)
62902 Appropriation (Special)
62903 Appropriation (Special)
62904 Amendment to grant agreement (Special)
62905 Appropriation (Special)
62906 Public work and improvement project (Special)
62907 Public work and improvement project (Special)
62908 Appropriation (Special)
62909 Appropriation (Special)
62910 Appropriation (Special)
62911 Appropriation (Special)
62912 Appropriation (Special)
62913 Redevelopment of blighted area (Special)
62914 Redevelopment of blighted area (Special)
62915 Option to purchase real estate (Special)
62914 Appropriation (Special)
62917 Borrowing of funds (Special)
62918 Bond issuance (Special)
62919 Vacation of public surface rights (Special)
62920 Establishes four-way stop intersection (Special)
62921 Vacation of public surface rights (Special)
62922 Installation of stop signs (Special)
62923 Vacation of public surface rights (Special)
62924 Installation of stop signs (Special)
62925 Designates housing conservation district (Repealed by 67914)
62926 Repeals and replaces § 17.30.010, trucks (17.30.010)
62927 Designates housing conservation district (Repealed by 67914)
62928 Parking prohibition (Special)
62929 Improvement of Municipal Water Works System (Special)
62930 Improvement of Municipal Water Works System (Special)
62931 Improvement of Municipal Water Works System (Special)
62932 Improvement of Municipal Water Works System (Special)
62933 Appropriation (Special)
62934 Vacation of public surface rights (Special)
62935 Designates stop intersection (Special)
62936 Installation of stop signs (Special)
62937 Vacation of portion of air rights (Special)
62938 Appropriation (Special)

62939 Private security personnel (8.75A)

62940 Repeals and replaces §§ 14.01.170, 14.01.330, 14.01.360, 14.01.380, 14.03.040 and 14.07.060, alcoholic beverages (14.01.170, 14.01.330, 14.01.360, 14.01.380, 14.03.040, 14.01.060)

62941 Repeals and replaces §§ 10.20.010 and 10.20.011, raising and keeping of certain animals (10.20.010, 10.20.011)

62942 Street closure (Special)

62943 Appropriation (Special)

62944 Amends Ord. 62878, public work (Special)

62945 Redevelopment of blighted area (Special)

62946 Excludes certain property from the Compton Hill Historic District (Special)

62947 Vacation of public surface rights (Special)

62948 Redevelopment of blighted area (Special)

62949 Redevelopment of blighted area (Special)

62950 Redevelopment of blighted area (Special)

62951 Redevelopment of blighted area (Special)

62952 Redevelopment of blighted area (Special)

62953 Redevelopment of blighted area (Special)

62954 Redevelopment of blighted area (Special)

62955 Redevelopment of blighted area (Special)

62956 Redevelopment of blighted area (Special)

62957 Redevelopment of blighted area (Special)

62958 Redevelopment of blighted area (Special)

62959 Redevelopment of blighted area (Special)

62960 Redevelopment of blighted area (Special)

62961 Redevelopment of blighted area (Special)

62962 Redevelopment of blighted area (Special)

62963 Redevelopment of blighted area (Special)

62964 Redevelopment of blighted area (Special)

62965 Contract amendment with Missouri Department of Health (Special)

62966 Excludes certain property from the Compton Hill Historic District (Special)

62967 Rezone (Special)

62968 Grant agreement with Missouri Department of Health (Special)

62969 Collection of sales tax imposed by Ord. 62802 (Special)

62970 Contract amendment with Missouri Department of Health (Special)

62971 Conduct on public transportation; repeals § 11.33.010 (11.33)

62972 Amends Ord. 59200, lease agreement (Special)

62973 Redevelopment of blighted area (Special)

62974 Aggressive begging; repeals Ord. 31323 (15.44)

62975 Agreement with Missouri Department of Health (Special)

62976 Adopts and approves memorandum of understanding (Special)

62977 Street closure (Special)

62978 Vacation of public surface rights (Special)

62979 Vacation of public surface rights (Special)

62980 Vacation of public surface rights (Special)

62981 Amends Ord. 58155, redevelopment of blighted area (Special)

62982 Application for Police Supplement Program grant funds (Special)

62983 Designates stop intersection (Special)

62984	Vacation of public surface rights (Special)
62985	Appropriation (Special)
62986	Adds subsection L to § 7 of Ord. 62657, city civil service (Ch. 4.10)
62987	Adds subsection 3 to § 3 of Ord. 62667, grades and salaries for Circuit Attorney employees (Not codified)
62988	Adds subsection c to § 3 of Ord. 62668, salaries for Recorder of Deeds employees (Not codified)
62989	Adds subsection (2)(b) to § 3 of Ord. 62665, salaries for Sheriff's Office employees (Not codified)
62990	Adds subsection (2)(b) to § 3 of Ord. 62664, salaries for Collector of Revenue employees (Not codified)
62991	Position grades and salaries for Circuit Attorneys Office employees (4.48)
62992	Adds subsection c to § 2 of Ord. 62666, salaries for License Collector's employees (Not codified)
62993	Redevelopment of obsolete area (Special)
62994	Adds § 4.18.131 and repeals and replaces §§ 4.18.010 and 4.18.260, Firemen's Retirement System (4.18.010, 4.18.131, 4.18.260)
62995	Redevelopment of blighted area (Special)
62996	Redevelopment of blighted area (Special)
62997	Redevelopment of blighted area (Special)
62998	Designates stop intersection (Special)
62999	Designates one-way streets (Special)
63000	Redevelopment of blighted area (Special)
63001	Appropriation (Special)
63002	Bond issuance (Special)
63003	Inclusion of two additional areas to an existing housing conservation district (Repealed by 67914)
63004	Redevelopment of blighted area (Special)
63005	Redevelopment of blighted area (Special)
63006	Redevelopment of blighted area (Special)
63007	Redevelopment of blighted area (Special)
63008	Redevelopment of blighted area (Special)
63009	Rezone (Special)
63010	Rezone (Special)
63011	Contract with Board of Police Commissioners for the Metropolitan Police Department (Special)
63012	Community Development Block grant funding (Special)
63013	Application for funds (Special)
63014	Appropriation (Special)
63015	Quitclaim deed (Special)
63016	Amends Ord. 62883, budget for fiscal year 1993/94 (Special)
63017	Redevelopment of blighted area (Special)
63018	Redevelopment of blighted area (Special)
63019	Redevelopment of blighted area (Special)
63020	Redevelopment of blighted area (Special)
63021	Redevelopment of blighted area (Special)
63022	Redevelopment of blighted area (Special)
63023	Redevelopment of blighted area (Special)
63024	Redevelopment of blighted area (Special)
63025	Redevelopment of blighted area (Special)
63026	Redevelopment of blighted area (Special)
63027	Redevelopment of blighted area (Special)
63028	Redevelopment of blighted area (Special)

63029	Redevelopment of blighted area (Special)
63030	Redevelopment of blighted area (Special)
63031	Redevelopment of blighted area (Special)
63032	Redevelopment of blighted area (Special)
63033	Redevelopment of blighted area (Special)
63034	Redevelopment of blighted area (Special)
63035	Redevelopment of blighted area (Special)
63036	Redevelopment of blighted area (Special)
63037	Street closure (Special)
63038	Temporary street closure (Special)
63039	Redevelopment of blighted area (Special)
63040	Establishes church stop sign (Special)
63041	Appropriation (Special)
63042	Redevelopment of blighted area (Special)
63043	Temporary street closure (Special)
63044	Easement agreement (Special)
63045	Easement agreement (Special)
63046	Appropriation (Special)
63047	Redevelopment of blighted area (Special)
63048	Appropriation (Special)
63049	Grant fund for dropoff recycling demonstration program (Special)
63050	Grant fund for blue bag recycling demonstration program (Special)
63051	Grant fund for waste reduction demonstration program (Special)
63052	Concession agreement (Special)
63053	Concession agreement (Special)
63054	Concession agreement (Special)
63055	Concession agreement (Special)
63056	Concession agreement (Special)
63057	Concession agreement (Special)
63058	Appropriation (Special)
63059	Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing amended grant agreement (Special)
63060	Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing amended grant agreement (Special)
63061	Appropriation (Special)
63062	Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing amended grant agreement (Special)
63063	Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing amended grant agreement (Special)
63064	Agreement with Missouri Department of Health (Special)
63065	Redevelopment of blighted area (Special)
63066	Redevelopment of blighted area (Special)
63067	Establishes four-way stop intersection (Special)
63068	Redevelopment of blighted area (Special)
63069	Redevelopment of blighted area (Special)
63070	Redevelopment of blighted area (Special)
63071	Temporary street closure (Special)
63072	Parking restriction (Special)
63073	Redevelopment of blighted area (Special)
63074	Renames park (22.44.360)
63075	Appropriation (Special)
63076	Redevelopment of blighted area (Special)
63077	Redevelopment of blighted area (Special)
63078	Contract with Bi-State Development Agency (Special)
63079	Redemption of bonds (Special)

63080 Repeals and replaces § 1 of Ord. 60196, special business district (Repealed by 64240)

63081 Redevelopment of blighted area (Special)

63082 Repeals and replaces § 2 of Ord. 62578, graduated business license tax (8.07.040)

63083 Appropriation (Special)

63084 Appropriation (Special)

63085 Appropriation (Special)

63086 Concession agreement (Special)

63087 Concession agreement (Special)

63088 Federal Aviation Regulation Part 150 Study Update at Lambert-St. Louis International Airport (Special)

63089 Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing grant agreement (Special)

63090 Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing grant agreement (Special)

63091 Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing grant agreement (Special)

63092 Ratifies and adopts the actions of the Mayor and Comptroller in accepting and executing grant agreement (Special)

63093 Sublease agreement (Special)

63094 Vacation of public surface rights (Special)

63095 Approves community plan application No. 6 (Special)

63096 Vacation of public surface rights (Special)

63097 Easement agreements (Special)

63098 Improvement of Municipal Water Works System (Special)

63099 Appropriation (Special)

63100 Submission to voters (Special)

63101 Vacation of public surface rights (Special)

63102 Vacation of public surface rights (Special)

63103 Permit parking at a personal residence for persons who are handicapped (17.76)

63104 Vacation of portion of air rights (Special)

63105 Agreement with Missouri Department of Health (Special)

63106 Street closure (Special)

63107 Lease agreement (Special)

63108 Redevelopment of blighted area (Special)

63109 Approves Addendum No. 4 to development plan (Special)

63110 Vacation of public surface rights (Special)

63111 Installation of school stop signs (Special)

63112 Redevelopment of blighted area (Special)

63113 Designates housing conservation district (Repealed by 67914)

63114 Redevelopment of blighted area (Special)

63115 Adds § 8.110.235, wreckers (8.110.235)

63116 Redevelopment of blighted area (Special)

63117 Contract service agreement (Special)

63118 Repeals and replaces Ord. 62657, classified service plan (4.10)

63119 Submission to voters (Special)

63120 Discharge of certain restrictive covenants and conditions pertaining to property transferred by quitclaim deed (Repealed by 63920)

63121 Expands housing conservation district (Repealed by 67914)

63122 Improvement of existing traffic signals (Special)

63123 Rezone (Special)

63124 Rezone (Special)

63125 Redevelopment of blighted area (Special)

63126 Appropriation (Special)

63127 Easement agreement (Special)

63128 Appropriation (Special)

63129 Repeals and replaces § 14.03.100, alcoholic beverages (14.03.100)

63130 Designates four-way stop (Special)

63131 Repeals and replaces §§ 17.56.070 and 17.56.150, vehicle towing code (17.56.070, 17.56.150)

63132 1994 St. Louis Works and the 50/50 Sidewalk Program (Special)

63133 Capital improvements (Special)

63134 Appropriation (Special)

63135 Bond issuance (Special)

63136 Water rates; repeals §§ 23.16.040, 23.16.050, 23.16.070, 23.16.080, 23.18.070, 23.20.020, 23.20.030 and 23.20.040 (23.16.040, 23.18.070, 23.20.015, 23.20.020, 23.20.030, 23.20.040)

63137 Reimbursement of expenditures made with respect to waterworks system (Special)

63138 Improvement of Municipal Water Works System (Special)

63139 Improvement of Municipal Water Works System (Special)

63140 Improvement of Municipal Water Works System (Special)

63141 Improvement of Municipal Water Works System (Special)

63142 Redevelopment of blighted area (Special)

63143 Redevelopment of blighted area (Special)

63144 Redevelopment of blighted area (Special)

63145 Appropriation (Special)

63146 Vacation of public surface rights (Special)

63147 Vacation of public surface rights (Special)

63148 Street closure (Special)

63149 Redevelopment of blighted area (Special)

63150 Adopts National Electrical Code, 1993 Edition; repeals Ords. 61751 and 62612 (25.02)

63151 Redevelopment of blighted area (Special)

63152 Budget (Special)

63153 Six-month moratorium on the erection of new off-site billboards or general outdoor advertising devices (Special)

63154 Establishes the Soulard Special Business District (Special)

63155 Distribution and sale of the Revised Code of the City of St. Louis; repeals Ord. 58275

63156 Establishes the Downtown Parks Business District (Special)

63157 Repeals §§ 4.16.515(A)(1) and (2), (B) and (C), city employee retirement system (Repealed by 64833)

63158 Repeals and replaces § 4.34.010, recorder of deeds employees (4.34.010)

63159 Position grades and salaries for Circuit Attorneys Office employees (4.48)

63160 Repeals and replaces Ch. 4.44, collection division employees (4.44)

63161 Borrowing of funds (Special)

63162 Ratifies and approves Lambert-St. Louis International Airport Concession agreement (Special)

63163 Public work and improvement program (Special)

63164 Amends § 1 of Ord. 63087, airport concession agreement (Special)

63165 Proposition submitted to voters (Special)

63166 Repair, equipping, modification and improvement of the Civil Courts Building (Special)

63167 Proposition submitted to voters (Special)

63168 Proposition submitted to voters (Special)

63169 Easement agreement (Special)

63170 Easement agreement (Special)

63171 Ratifies and adopts actions of the Mayor and Comptroller in accepting and executing an amendment to a grant agreement (Special)

63172 Agreement with Missouri Department of Health, Bureau of Special Health Care Needs (Special)

63173 Vacation of public surface rights (Special)

63174 Appropriation (Special)

63175 Establishes a housing conservation district for all of Ward 27 (Repealed by 67914)

63176 Street closure (Special)

63177 Vacation of public surface rights (Special)

63178 Vacation of public surface rights (Special)

63179 License Collectors employees salaries; repeals Ord. 62666 (4.28)

63180 Appropriation (Special)

63181 Parking Division Office employees salaries; repeals Ord. 62663 (4.30.010, 4.30.012, 4.30.015, 4.30.020, 4.30.021, 4.30.022, 4.30.023, 4.30.024)

63182 Treasurer's Office employee salaries; repeals Ord. 62662 (4.26.015, 4.26.020, 4.26.021, 4.26.022, 4.26.023, 4.26.030, 4.26.040, 4.26.050, 4.26.060)

63183 Redevelopment of blighted area (Special)

63184 Development of blighted area (Special)

63185 Rezone (Special)

63186 Street closure (Special)

63187 Stop sign (Special)

63188 Stop intersection (Special)

63189 Vacation of public surface rights (Special)

63190 Rezone (Special)

63191 Redevelopment of blighted area (Special)

63192 Redevelopment of blighted area (Special)

63193 Redevelopment of blighted area (Special)

63194 Redevelopment of blighted area (Special)

63195 Appropriation from the Airport Development Fund (Special)

63196 Public works and improvement program at Lambert-St. Louis International Airport (Special)

63197 Appropriation from the Airport Development Fund (Special)

63198 Appropriation from the Airport Development Fund (Special)

63199 Appropriation of 1994 CDBG program year funds (Special)

63200 Appropriation of UDAG repayment funds (Special)

63201 Redevelopment of blighted area (Special)

63202 Vacation of public surface rights (Special)

63203 Redevelopment of blighted area (Special)

63204 Redevelopment of blighted area (Special)

63205 Redevelopment of blighted area (Special)

63206 Redevelopment of blighted area (Special)

63207 Redevelopment of blighted area (Special)

63208 Four-way stop intersection (Special)

63209 Redevelopment of blighted area (Special)

63210 Vacation of public surface rights (Special)

63211 Repeals Ord. 62743 (Repealer)

63212 Rezone (Special)

63213 Redevelopment of blighted area (Special)

63214 Redevelopment of blighted area (Special)

63215 Redevelopment of blighted area (Special)

63216 Redevelopment of blighted area (Special)

63217 Redevelopment of blighted area (Special)

63218 Redevelopment of blighted area (Special)

63219 Redevelopment of blighted area (Special)

63220 Redevelopment of blighted area (Special)

63221 Redevelopment of blighted area (Special)

63222 Redevelopment of blighted area (Special)

63223 Rezone (Special)

63224 Vacation of public surface rights (Special)

63225 Vacation of public surface rights (Special)

63226 Vacation of public surface rights (Special)

63227 Repeals and replaces § 24.18.040, outdoor general advertising devices (24.44.040)

63228 Sheriff's Office employees salaries; repeals Ord. 62665 (4.28)

63229 Redevelopment of blighted area (Special)

63230 Redevelopment of blighted area (Special)

63231 Redevelopment of blighted area (Special)

63232 Redevelopment of blighted area (Special)

63233 Redevelopment of blighted area (Special)

63234 Redevelopment of blighted area (Special)

63235 Repeals and replaces Ch. 1.01, code adoption (1.01)

63236 Redevelopment of blighted area (Special)

63237 Redevelopment of blighted area (Special)

63238 Redevelopment of blighted area (Special)

63239 Redevelopment of blighted area (Special)

63240 Redevelopment of blighted area (Special)

63241 Redevelopment of blighted area (Special)

63242 Redevelopment of blighted area (Special)

63243 Redevelopment of blighted area (Special)

63244 Redevelopment of blighted area (Special)

63245 Tampering with fire hydrants; amends § 24.10.040, abuse of water privileges (24.10.040, 24.11)

63246 Redevelopment of blighted area (Special)

63247 Redevelopment of blighted area (Special)

63248 Redevelopment of blighted area (Special)

63249 Redevelopment of blighted area (Special)

63250 Redevelopment of blighted area (Special)

63251 Redevelopment of blighted area (Special)

63252 Redevelopment of blighted area (Special)

63253 Amends § 6 of Ord. 60793, development plan (Special)

63254 Amends the preamble and § 14 of Ord. 63036, redevelopment of blighted area (Special)

63255 Redevelopment of blighted area (Special)

63256 Approves Community Unit Plan application No. 7 (Special)

63257 Redevelopment of blighted area (Special)

63258 Redevelopment of blighted area (Special)

63259 Redevelopment of blighted area (Special)

63260 Redevelopment of blighted area (Special)

63261	Redevelopment of blighted area (Special)
63262	Redevelopment of blighted area (Special)
63263	Redevelopment of blighted area (Special)
63264	Redevelopment of blighted area (Special)
63265	Redevelopment of blighted area (Special)
63266	Redevelopment of blighted area (Special)
63267	Redevelopment of blighted area (Special)
63268	Redevelopment of blighted area (Special)
63269	Repeals Ord. 32967 (Repealer)
63270	Ward specific capital improvements (Special)
63271	Lease agreement (Special)
63272	Agreement with Land Clearance for Redevelopment Authority (Special)
63273	Amendment to agreement with Missouri Department of Health (Special)
63274	Rezone (Special)
63275	Redevelopment of blighted area (Special)
63276	Redevelopment of blighted area (Special)
63277	Redevelopment of blighted area (Special)
63278	Redevelopment of blighted area (Special)
63279	Redevelopment of blighted area (Special)
63280	Redevelopment of blighted area (Special)
63281	Redevelopment of blighted area (Special)
63282	Redevelopment of blighted area (Special)
63283	Redevelopment of blighted area (Special)
63284	Redevelopment of blighted area (Special)
63285	Redevelopment of blighted area (Special)
63286	Amends §§ 4.18.120 and 4.18.130, Firemen's Retirement System (4.18.120, 4.18.130)
63287	Redevelopment of blighted area (Special)
63288	Vacation of public surface rights (Special)
63289	Ratifies and adopts actions of the Mayor and the Comptroller in accepting and executing a grant agreement (Special)
63290	Ratifies and adopts actions of the Mayor and the Comptroller in accepting and executing a grant agreement (Special)
63291	Ratifies and adopts actions of the Mayor and the Comptroller in accepting and executing a grant agreement (Special)
63292	Fourth amendment to the indenture of lease with Lambert Field Fueling Corporation (Special)
63293	First amendment to a concession agreement (Special)
63294	Redevelopment of blighted area (Special)
63295	Establishes two-way stop (Special)
63296	Agreement with the Missouri Department of Health (Special)
63297	Amends Exhibit A of Ord. 63132, St. Louis Works and 50/50 Sidewalk Program (Special)
63298	Agreement with United States Department of Housing and Urban Development (Special)
63299	Amends § 26.80.070, zoning (26.80.070)
63300	Rezone (Special)
63301	Rezone (Special)
63302	Rezone (Special)
63303	Rezone (Special)
63304	Rezone (Special)
63305	Rezone (Special)
63306	Vacation of public surface rights (Special)

63307 Unconditional vacation and abolition of public right-of-way (Special)

63308 Unconditional vacation and abolition of public right-of-way (Special)

63309 Temporary street closure (Special)

63310 Establishes three-way stop intersection (Special)

63311 Redevelopment of blighted area (Special)

63312 Curfew for Mt. Pleasant Park (22.18.025)

63313 Authorizes mayor to submit a consolidated plan to HUD to make application for entitlement programs (Special)

63314 Appropriation of funds (Special)

63315 Submission to voters to repeal and replace Charter Art. IV, Section 24, fines and punishment (Charter, Art. IV)

63316 Redevelopment of blighted area (Special)

63317 Redevelopment of blighted area (Special)

63318 Redevelopment of blighted area (Special)

63319 Redevelopment of blighted area (Special)

63320 Redevelopment of blighted area (Special)

63321 Rezone (Special)

63322 Rezone (Special)

63323 Rezone (Special)

63324 Redevelopment of blighted area (Special)

63325 Redevelopment of blighted area (Special)

63326 Redevelopment of blighted area (Special)

63327 Designation of Lafayette Square Historic District; repeals Ords. 56248 and 63327 (Special)

63328 Supplemental appropriation from the Airport Development Fund (Special)

63329 Supplemental appropriation from the Airport Development Fund (Special)

63330 First Southwest Airlines Co. amendatory agreement for East Terminal expansion (Special)

63331 Ratifies and approves actions of the Mayor and Comptroller in accepting and executing a grant agreement (Special)

63332 Ratifies and approves actions of the Mayor and Comptroller in accepting and executing a grant agreement (Special)

63333 Redevelopment of blighted area (Special)

63334 Redevelopment of blighted area (Special)

63335 Redevelopment of blighted area (Special)

63336 Redevelopment of blighted area (Special)

63337 Redevelopment of blighted area (Special)

63338 Redevelopment of blighted area (Special)

63339 Redevelopment of blighted area (Special)

63340 Redevelopment of blighted area (Special)

63341 Redevelopment of blighted area (Special)

63342 Redevelopment of blighted area (Special)

63343 Redevelopment of blighted area (Special)

63344 Redevelopment of blighted area (Special)

63345 Redevelopment of blighted area (Special)

63346 Repeals and replaces §§ 23.06.020 and 23.06.030, water bills (23.06.020, 23.06.030)

63347 Repeals and replaces § 4.16.270, city employee retirement system (Repealed by 64833)

63349 Stop sign and crosswalk designation (Special)

63350 Reserve parking for circuit attorney's office (17.71)

63351 Four-way stop intersection designated (Special)

63352 Street closure (Special)

63353 Vacation of public surface rights (Special)

63354 Vacation of public surface rights (Special)

63355 Alley closure (Special)

63356 Vacation of public surface rights (Special)

63357 Vacation of public surface rights (Special)

63358 Vacation and abolition of a public right-of-way (Special)

63359 Vacation of public surface rights (Special)

63360 Vacation of public surface rights (Special)

63361 Easement (Special)

63362 Redevelopment of blighted area (Repealed by 63886)

63363 Vacation of public surface rights (Special)

63364 Vacation of public surface rights (Special)

63365 Vacation of public surface rights (Special)

63366 Second supplemental indenture of trust between St. Louis Municipal Finance Corporation and Mark Twain Bank (Special)

63367 Appropriation of funds and authorization to provide for engineering design and construction work (Special)

63368 Appropriation of funds and authorization to provide for improvements (Special)

63369 Appropriation of funds and authorization to provide for engineering design and construction work (Special)

63370 Appropriation from the Airport Development Fund (Special)

63371 Recommendation to initiate a Public Work and Improvement Program at Lambert-St. Louis International Airport (Special)

63372 First supplemental appropriation from the Airport Development Fund (Special)

63373 Authorizes Mayor to apply for and execute a grant from the United States Environmental Protection Agency (Special)

63374 Appropriation of 1994 Emergency Supplemental Community Development Block Grant Funds (Special)

63375 Repeals and replaces § 3.77.030, capital needs committees (5.35.020, 5.35.030, 5.35.040)

63376 Street closure (Repealed by 64359 and 67521)

63377 Submission to voters (Special)

63378 St. Louis NFL/Los Angeles Rams agreements (Special)

63379 City Public Transit Sales Tax Trust Fund (Special)

63380 Appropriation from Transportation Trust Fund (Special)

63381 Redevelopment of blighted area (Special)

63382 Redevelopment of blighted area (Special)

63383 Agreement between the city and the West End Community Center (Special)

63384 Redevelopment of blighted area (Special)

63385 Redevelopment of blighted area (Special)

63386 Redevelopment of blighted area (Special)

63387 Redevelopment of blighted area (Special)

63388 Notification and removal of stolen vehicle (17.56.055)

63389 Naming of bridge (Special)

63390 Redevelopment of blighted area (Special)

63391 Alley closure (Special)

63392 Vacation of public surface rights (Special)

63393 Street closure (Special)

63394 Street closure (Special)

63395 Redevelopment of blighted area (Special)

63396 Redevelopment of blighted area (Special)

63397 Redevelopment of blighted area (Special)

63398 Redevelopment of blighted area (Special)

63399 Redevelopment of blighted area (Special)

63400 Redevelopment of blighted area (Special)

63401 Establishes a Housing Conservation District in Ward 17 and Ward 8 (Repealed by 67914)

63402 Vacation of public surface rights (Special)

63403 Redevelopment of blighted area (Repealed by 64117)

63404 Agreement with Missouri Department of Health for a grant to fund a coordination services for lead exposure program (Special)

63405 Street closure (Special)

63406 Redevelopment of blighted area (Special)

63407 Redevelopment of blighted area (Special)

63408 Redevelopment of blighted area (Special)

63409 Redevelopment of blighted area (Special)

63410 Redevelopment of blighted area (Special)

63411 Redevelopment of blighted area (Special)

63412 Redevelopment of blighted area (Special)

63413 Redevelopment of blighted area (Special)

63414 Redevelopment of blighted area (Special)

63415 Redevelopment of blighted area (Special)

63416 Redevelopment of blighted area (Special)

63417 Redevelopment of blighted area (Special)

63418 Redevelopment of blighted area (Special)

63419 Redevelopment of blighted area (Special)

63420 Redevelopment of blighted area (Special)

63421 Redevelopment of blighted area (Special)

63422 Redevelopment of blighted area (Special)

63423 Redevelopment of blighted area (Special)

63424 Redevelopment of blighted area (Special)

63425 Redevelopment of blighted area (Special)

63426 Redevelopment of blighted area (Special)

63427 Redevelopment of blighted area (Special)

63428 Redevelopment of blighted area (Special)

63429 Redevelopment of blighted area (Special)

63430 Redevelopment of blighted area (Special)

63431 Redevelopment of blighted area (Special)

63432 Redevelopment of blighted area (Special)

63433 Redevelopment of blighted area (Special)

63434 Redevelopment of blighted area (Special)

63435 Redevelopment of blighted area (Special)

63436 Vacation of public surface rights (Special)

63437 Vacation of public surface rights (Special)

63438 Agreement between Refuse Commissioner and St. Louis Solid Waste District for a grant to fund a "Don't Bag It" yard waste project (Special)

63439 Agreement between Refuse Commissioner and St. Louis Solid Waste District for a grant to fund a drop-off recycling expansion project (Special)

63440 Agreement between Refuse Commissioner and St. Louis Solid Waste District for a grant to fund a household hazardous waste recycling and disposal project (Special)

63441 Agreement amendment No. 2 with the Missouri Department of Health for a grant to fund a tuberculosis outreach program/HIV related demonstration project (Special)

63442 Redevelopment of blighted area (Special)

63443 Redevelopment of blighted area (Special)

63444 Agreement with the Missouri Department of Public Health and Safety and the Missouri Juvenile Justice Advisory Group for a grant to fund a delinquency and youth violence prevention program (Special)

63445 Redevelopment of blighted area (Special)

63446 Land lease with U.S. Department of Transportation (Special)

63447 Vacation of public surface rights (Special)

63448 Appropriation of funds and authorization to provide for construction (Special)

63449 Easement (Special)

63450 Easement (Special)

63451 Easement (Special)

63452 Reporting of annual expenditures of city alderman participating in the accountable plan (Special)

63453 Agreement between Director of Public Safety and Sheriff prohibiting Sheriff from issuing gun permits to any person who fails to show proof that they have a lock or locked container for the gun (Special)

63454 Repeals and replaces § 8.02.010(A), business licenses (8.02.010)

63455 Vacation of public surface rights (Special)

63456 Vacation of public surface rights (Special)

63457 Repeals and replaces § 10.04.020 and repeals § 10.04.030, dogs and cats (10.04.020)

63458 Vacation of public surface rights (Special)

63459 Rezone (Special)

63460 Redevelopment of blighted area (Special)

63461 Repeals and replaces § 8.72.160, pawnbrokers (8.72.160)

63462 Temporary construction easement (Special)

63463 Vacation of public surface rights (Special)

63464 Vacation of public surface rights (Special)

63465 1995-1996 budget (Special)

63466 Street vacation—11th and Chestnut (Special)

63467 Restricted parking at federal courthouse (Special)

63468 Urban Development Action Grant appropriations (Special)

63469 Urban Development Action Grant consolidated plan (Special)

63470 Alley vacation—City Block 3479 (Special)

63471 Alley vacation—City Block 1709-B (Special)

63472 Street vacation—Douglas/Broadway (Special)

63473 Street vacation—Ewing Avenue between Chouteau Avenue and LaSalle Street (Special)

63474 Renames Pontiac Central Park to Fremont Park (Special)

63475 Repeals §§ 4 and 5 of Ord. 59822, firemen's retirement system (4.18.225)

63476 Amends Ord. 63152, bonus for policemen and firemen (Special)

63477 Easement—Maryland Heights water works road (Special)

63478 Repeals and replaces §§ 8.82.010—8.82.050, 8.82.051 and 8.82.060 and repeals §§ 8.82.070 and 8.82.080, secondhand dealers (8.82.010, 8.82.020, 8.82.030, 8.82.040, 8.82.050, 8.82.051, 8.82.060)

63479 Establishes Waterman/Lake special business district (Special)

63480 Submission of tax proposition to qualified voters residing in the Waterman/Lake special business district (Special)

63481 Establishes Waterman/Lake special business district (Special)

63482 Submission of tax proposition to qualified voters residing in the Waterman/Lake special business district (Special)

63483 Establishes Washington Place special business district (Special)

63484 Submission of tax proposition to qualified voters residing in the Washington Place special business district (Special)

63485 Contract with Missouri-American Water Company (Special)

63486 Establishes four-way stop intersection at Cherokee and Illinois (Special)

63487 Street vacation—Theresa Avenue/Scott Railroad (Special)

63488 Alley vacation—City Block 1780 (Special)

63489 Borrowing of funds (Special)

63490 Repeals and replaces § 1 of 62046, extension and improvement of municipal water works (Special)

63491 Redevelopment of blighted area—2001-09 Olive Street Area (Special)

63492 Redevelopment of blighted area—515 Olive Street Area (Special)

63493 Grants an easement and right of access to Drury Displays, Inc. at airport (Special)

63494 Airport expansion improvement program (Special)

63495 Grants license for use of real property at airport to U.S. Department of Commerce (Special)

63496 Sixth supplemental appropriation from the airport development fund into Bridgeton land acquisition (Special)

63497 Grant from U.S. Department of Transportation (Special)

63498 Agreement with ALD Services for right to operate a concession at the airport (Special)

63499 Lease agreement with Trans Air Credit Union at airport (Special)

63500 Redevelopment of blighted area—Mark Twain Hotel Area (Special)

63501 Redevelopment of blighted area—2312-2414 South Jefferson Area (Special)

63502 Redevelopment of blighted area—303 North Broadway Area (Special)

63503 Sale of merchandise from motor vehicles (Ch. 15.59)

63504 Financial contributions from gaming interests (Ch. 4.08)

63505 Amends Ord. 58493, airport improvement (Special)

63506 Appropriation from parking fund (Special)

63507 Community policing services grant (Special)

63508 Supplemental appropriation from the Forest Park subaccount (Special)

63509 Street name change—Mayfair Plaza to St. Charles Street (Special)

63510 Establishes three-way stop intersection at Penrose and Newstead Avenues (Special)

63511 Street vacation—Piedmont Avenue (Special)

63512 Establishes Waterman/DeGiverville residential parking district (17.92)

63513 Sale of real estate—4024 Delmar Boulevard (Special)

63514 Sale of real estate—4300 Washington Boulevard (Special)

63515 Supplemental appropriation from the airport development fund (Special)

63516 Repeals and replaces § 3.87.060, neighborhood improvement districts (3.87.060)

63517 Appropriation from revenues in the police department capital improvements account of the capital improvements sales tax trust fund No. 1220 (Special)

63518 Sale of real estate to board of education for the consideration of receiving other property from the board of education (Special)

63519 Repeals and replaces §§ 8.109.010 and 8.109.020, vendors at fairs and festivals (8.109.010, 8.109.020)

63520 Appropriation for improvements in Forest Park (Special)

63521 Appropriation from ward capital improvements account (Special)

63522 Creates city public transit sales tax trust fund (Special)

63523 Appropriation from the transportation trust fund (Special)

63524 Adopts passenger facility charge program to preserve and enhance the safety, capacity and security of the transportation facilities and mitigate noise impacts at the airport (Special)

63525 Rezone (Special)

63526 Sale of real estate in DeSoto Park (Special)

63527 Repeals and replaces §§ 11.56.640—11.56.660, disease prevention (11.56.640, 11.56.650, 11.56.660)

63528 HUD loan request (Special)

63529 Lease of public wharf/S.I. Warehousing/Slay Industries (Repealed by 64474)

63530 Amends lease agreement authorized by Ord. 62718 (Repealed by 64474)

63531 Airport refunding bonds (Special)

63532 Demolition of Children's Building (Special)

63533 Renames ball field area in River Des Peres Park to Paul Fultz Field (Special)

63534 Redevelopment of blighted area—Madison Acres Area (Special)

63535 Redevelopment of blighted area—11th/Clark/8th/Poplar Area (Special)

63536 Alley vacation—City Block 516 (Special)

63537 Establishes and creates planned development in City Block 6486 (Special)

63538 Authorizes Director of Health and Hospitals to enter into contracts with private health care providers for the City to provide health care services for the clients or enrollees of that provider (Special)

63539 Contract with Board of Education for a grant to fund support work related to CAFA forfeiture proceedings (Special)

63540 Contract with St. Louis-Jefferson Solid Waste Management District for a grant to fund a Recycles Education Campaign (Special)

63541 Contract with St. Louis-Jefferson Solid Waste Management District for a grant to fund a Curbside Recycling Pilot Project (Special)

63542 Contract with St. Louis-Jefferson Solid Waste Management District for a grant to fund a Compost Bin Giveaway Project (Special)

63543 Redevelopment of blighted area—1909-15 Oregon Area (Special)

63544 Redevelopment of blighted area—McNair/Wisconsin Area (Special)

63545 Redevelopment of blighted area—2619-21 South 12th Street Area (Special)

63546 Redevelopment of blighted area—4562-70 Newberry Terrace Area (Special)

63547 Redevelopment of blighted area—4933 Fountain Avenue Area (Special)

63548 Redevelopment of blighted area—5157 Cates Avenue Area (Special)

63549 Redevelopment of blighted area—4501-15 Washington Boulevard Area (Special)

63550 Redevelopment of blighted area—4346-48 Natural Bridge Avenue Area (Special)

63551 Redevelopment of blighted area—4457-59 Athlone Avenue Area (Special)

63552 Redevelopment of blighted area—2625 Dalton Avenue Area (Special)

63553 Redevelopment of blighted area—4945-47 McPerson Avenue Area (Special)

63554 Redevelopment of blighted area—South Jefferson/Miami Street Area (Special)

63555 Redevelopment of blighted area—Baden Scattered Sites III Area (Special)

63556 Redevelopment of blighted area—California/Victor Scattered Sites Area (Special)

63557 Redevelopment of blighted area—Soulard Scattered Sites IV Area (Special)

63558 Redevelopment of blighted area—3815-25 Westminister Place Area (Special)

63559 Redevelopment of blighted area—2750 Russell Boulevard Area (Special)

63560 Convention and sports facilities cooperation agreement (Special)

63561 Temporary street closure—North 22nd Street at Newhouse (Special)

63562 Temporary street closure—Bremen Avenue at 20th Street (Special)

63563 Parking restrictions—Lucas Avenue (Special)

63564 Establishes two-way stop at 5050 Oakland Avenue (Special)

63565 Designates four-way stop intersection at Halls Ferry Road/Hornsby Road (Special)

63566 Temporary street closure—Knapp Avenue/Branch Avenue (Special)

63567 Redevelopment of blighted area—Southwest Garden Scattered Sites II Area (Special)

63568 Redevelopment of blighted area—3439 Halliday Avenue Area (Special)

63569 Redevelopment of blighted area—Tower Grove South Scattered Sites IV Area (Special)

63570 Redevelopment of blighted area—4504-10 Carter Avenue Area (Special)

63571 Redevelopment of blighted area—4219 Harris Avenue Area (Special)

63572 Redevelopment of blighted area—McKinley-Fox Scattered Sites Area (Special)

63573 Redevelopment of blighted area—4129 Cleveland Avenue Area (Special)

63574 Redevelopment of blighted area—3006 Salena Street Area (Special)

63575 Redevelopment of blighted area—3918-20 Lexington Avenue Area (Special)

63576 Redevelopment of blighted area—5929 Mimika Avenue Area (Special)

63577 Redevelopment of blighted area—Chippewa/Jamieson Scattered Sites Area (Special)

63578 Redevelopment of blighted area—Vaughn Apartments Area (Special)

63579 Street vacation—Scott/Taylor (Special)

63580 Redevelopment of blighted area—8960 Riverview Boulevard Area (Special)

63581 Street vacation—Sidney/city limit (Special)

63582 Street vacation—Short/Desoto-Talcott (Special)

63583 Alley vacation—city block 1810 bounded by Caroline, Jefferson, Park and Ohio (Special)

63584 Alley vacation—city block 1811 bounded by Rutger, Jefferson, Caroline and Ohio (Special)

63585 Alley vacation—city block 1900 bounded by Montgomery, Elliot, Benton and Leffingwell (Special)

63586 Rezone—city block 1349 to J (Special)

63587 Dedicates public park to honor memory of Alderman Samuel M. Kennedy (Special)

63588 Annual plan for application to HUD for 1996 CDBG, HOME, ESG and HOPWA entitlement programs (Special)

63589 Supplemental appropriation to annual budget ordinance 63465 (Special)

63590 Repeals and replaces Ch. 17.77 and §§ 17.76.010—17.76.040 and amends §§ 17.76.050—17.76.070, handicapped parking (17.76.010, 17.76.020, 17.76.025, 17.76.030, 17.76.035, 17.76.040, 17.76.050, 17.76.060, 17.76.060, 17.77.010, 17.77.020, 17.77.030)

63591 Adds § 4.18.132, 4.18.351 and 4.18.386 and repeals and replaces §§ 4.18.120, 4.18.130 and 4.18.131, firemen's retirement system (4.18.120, 4.18.130, 4.18.131, 4.18.132, 4.18.351, 4.18.386)

63592 Lease and development agreement with Port Authority and St. Louis Entertainment Ventures, L.L.C.; development of riverfront area (Special)

63593 Appropriation for airport expansion (Special)

63594 Street closure—Allen Avenue/alley west of Jefferson (Special)

63595 Four-way stop—Veronica Avenue and Tara Lane (Special)

63596 Redevelopment of blighted area—2504-06, 2518-20 Belle Glade Avenue and 4617 St. Ferdinand Avenue Area (Special)

63597 Redevelopment of blighted area—4109-11 and 4112-20 North Newstead Avenue Area (Special)

63598 Redevelopment of blighted area—1716-30 South Vandeventer Avenue Area (Special)

63599 Redevelopment of blighted area—3218-20 South Jefferson Area (Special)

63600 Street vacation—McCullagh Place (Special)

63601 Redevelopment of blighted area—Mullanphy Place Area (Special)

63602 Street vacation—Kemper/Hereford (Special)

63603 Street vacation—city block 5197, east/west alley (Special)

63604 Redevelopment of blighted area—6816-18 Michigan Avenue Area (Special)

63605 Sublease agreement between Lambert Airport and Sabreliner Corporation (Special)

63606 Street vacation—alley in city block 5234 (Special)

63607 Street vacation—South Court/Buckingham (Special)

63608 Redevelopment of blighted area—4637 and 4650 Shenandoah Avenue and 2286 South Kingshighway Boulevard Area (Special)

63609 Easement—MSD for River Des Peres Park (Special)

63610 Adopts 1993 BOCA National Building Code; repeals Ords. 62609, 62492, 61173, 61053 and 60664 (25.01)

63611 Street vacation—Desoto Avenue from McKissock to West 2nd Street (Special)

63612 Rezone city block 1279 to G (Special)

63613 Redevelopment of blighted area—6435 Chippewa Street Area (Special)

63614 Redevelopment of blighted area—North Broadway Industrial Park Area (Special)

63615 Redevelopment of blighted area—7901-03 South Broadway Area (Special)

63616 Redevelopment of blighted area—2107-17 Gratiot Street Area (Special)

63617 Easement—MSD for Wilmore and River Des Peres Parks (Special)

63618 Prohibits issuance of any package or drink liquor licenses within the boundaries of the Nineteenth Ward (Special)

63619 Prohibits parking on Accomac Street except by police vehicles (17.72.020)

63620 Adopts 1996 National Electrical Code; repeals Ord. 63150 (25.02)

63621 Adopts 1993 BOCA Mechanical Code; repeals Ords. 60513 and 62611 (25.03)

63622 Lease with Chain of Rocks Joint Venture—riverboat gaming (Special)

63623 Redevelopment of blighted area—3608 North Grand Boulevard Area (Special)

63624 Redevelopment of blighted area—Dayton/Dr. Martin Luther King/North Garrison/Glasgow Area (Special)

63625 Redevelopment of blighted area—6180 Lucille Avenue Area (Special)

63626 Redevelopment of blighted area—Kingsway Scattered Sites Area (Special)

63627 Redevelopment of blighted area—2211 Menard Street Area (Special)

63628 Redevelopment of blighted area—1808-14 and 1820-24 Kennett Place Area (Special)

63629 Redevelopment of blighted area—3960 McDonald Avenue Area (Special)

63630 Redevelopment of blighted area—3808 Juniata Street Area (Special)

63631 Contract amendment with Missouri Department of Health for maternal and child health services (Special)

63632 Contract with Missouri Department of Health for birth and death records (Missouri Local Records Program) (Special)

63633 Repeals and replaces Ch. 11.56, disease and disease prevention; repeals Ord. 41474 (11.56)

63634 Establishes East Loop/Parkview Special Business District (Special)

63635 Proposition submitted to voters—East Loop/Parkview Special Business District tax levy (Special)

63636 Street closure—Beck Avenue at Ridgewood (Special)

63637 Redevelopment of blighted area—4112-14 Manchester Avenue Area (Special)

63638 Street closure for six months—Hickory Avenue at west curb line of north/south alley at city blocks 482E and 483E (Special)

63639 Redevelopment of blighted area—1706 Edwards Street Area (Special)

63640 Redevelopment of blighted area—2001 Park Avenue Area (Special)

63641 Repeals and replaces § 8.88.050, steam (8.88.050)

63642 Street vacation—Beck Avenue at Ridgewood (Special)

63643 Repeals and replaces Ord. 58737, disabled parking spaces in the Washington Square Area (17.62.170)

63644 Street vacation—Beaumont Avenue and city blocks 926 and 987 (Special)

63645 Street vacation—Marion Street from 8th Street to 9th Street (Special)

63646 Ninth supplemental appropriation from airport development fund into Southeast Berkeley Land Acquisition Ordinance 60542 (Special)

63647 Third supplemental appropriation from airport development fund into Ord. 61273 (Special)

63648 Street vacation—Chippewa at Kosciusko and city block 1766 (Special)

63649 Street vacation—city block 3314, Gano, Bulwer, East Prairie and McKissock (Special)

63650 Sale of property in Kinloch (Special)

63651 Sale and possession of diphenhydramine (11.74)

63652 Extension of waterworks—Wilson Avenue (Special)

63653 Amends § 23.04.070, water service line repairs (23.04.070)

63654 Extension and improvement of waterworks system throughout city (Special)

63655 Waterworks system sale to county (Repealed by 63882)

63656 Street vacation—north/south alley in city block 1214 (Special)

63657 Designates a portion of Ward 12 as a housing conservation district (Repealed by 67914)

63658 Street vacation—alley in city block 4906-B (Special)

63659 Street vacation—alley in city block 425 (Special)

63660 Street vacation—alley in city block 435 (Special)

63661 Rezone—city blocks 1100, 1101, 1102, 1103, 1106, 1107, 1108 and 1109 to A (Special)

63662 Rezone—city blocks 951, 952, 953, 954, 957, 958, 959 and 960 to J (Special)

63663 Rezone—city blocks 2342, 2331, 1877, 2330, 2345, 2346, 2347, 1081, 1082, 1095, 2344, 2146, 2343, 1099, 1178, 1096, 1094, 1083, 1080, 1079, 1084, 1093, 1103, 1092, 1085, 1078, 1077, 1086, 1091, 1097, 1177, 1098, 1104, 1134W, 1090S, 1087S, 1076, 1075, 1087N, 1090N, 1135W, 1089, 1088, 1074, 2376E, 2379 and 2380 to A (Special)

63664 Street vacation—Virginia/Espenschied/Michigan (Special)

63665 Rezone—city block 1780 to J (Special)

63666 Disclosure of gifts to employees (4.03)

63667 Street closure—Wells/Kingshighway (Special)

63668 Harboring of minors (15.121)

63669 Amends § 1 of Ord. 63196, public works and improvement at airport (Special)

63670 Fifth amendment to indenture of lease with Lambert Field fueling facilities (Special)

63671 Four-way stop—Taylor Avenue and Duncan Avenue (Special)

63672 Establishes Cemetery Project at the airport (Repealed by 63825)

63673 Carbon monoxide detectors (25.60)

63674 Establishes public work and improvement program at Lambert-St. Louis Airport (Special)

63675 Establishes public work and improvement program at Lambert-St. Louis Airport (Special)

63676 Voter submission—tax for sheltered workshops (Repealed by 63722)

63677 Redevelopment of blighted area—Riverview/Lillian/Wren/Bircher Area (Special)

63678 Redevelopment of blighted area—7927-29 Pennsylvania Avenue Area (Special)

63679 Rezone—city blocks 1313, 1314, 1316 and 1318 to C (Special)

63680 Four-way stop—Virginia Avenue and Blow Avenue (Special)

63681 Amends Ord. 63409, redevelopment of blighted area—North Broadway/Douglas Area (Special)

63682 Rezone—city blocks 5743 and 5744 to B (Special)

63683 Rezone—city block 5197 to G (Special)

63684 Redevelopment of blighted area—Parkview Gardens Area (Special)

63685 Street vacation—city blocks 427 and 434 bounded by Spruce, 9th, Poplar and 11th (Special)

63686 Adds § 26.68.180, comprehensive sign control regulations (26.68.180)

63687 Prohibits the assignment, or other transfer of any interest or obligation contained in any contracts, lease and other agreement to which the city is a part (3.94)

63688 Street vacation—east/west alley in city block 1082 (Special)

63689 Air rights vacation—Busch Place (7th Street) (Special)

63690 Amends Ord. 63464, street vacation—Berthold Avenue (Special)

63691 Street vacation—city block 2016, Commercial Avenue (Special)

63692 Sale of city real estate to Royal Vagabonds, Inc. (Special)

63693 Church stop sign—4229 West Page (Special)

63694 Adds § 19(d) to Ord. 63118, compensation for employees for duty in Bosnia (Special)

63695 Adopts 1996 BOCA National Property Maintenance Code; repeals Ord. 52132 and 60828 (25.32)

63696 Repeals and replaces § 4 of Ord. 61250, capital needs committees (5.35.020, 5.35.030, 5.35.040)

63697 Adds § 17.16.440, shortcutting traffic (17.16.440)

63698 Contract with Missouri Department of Health for a grant to fund an expanded family program (Special)

63699 Repeals and replaces Chs. 11.42 and 11.43, restaurants (11.42, 11.43)

63700 Construction of Arsenal Street Bridge (Special)

63701 Repeals and replaces Ch. 4.34, recorder of deed employees (4.34)

63702 1996 St. Louis Works and 50/50 Sidewalk Programs (Special)

63703 Adopts 1996 BOCA National Building Code; repeals Ords. 54748, 60948, 61053, 61173 and 62609 (Ch. 25.01)

63704 Sale of city real estate to LRA in city block 2336 (Special)

63705 Classified service plan (4.10)

63706 Sheriff's office employees' compensation (4.36)

63707 Renames Gamble Park as Norman R. Seay Expansion Park (22.44.370)

63708 Temporary street closure—Enright/Taylor (Special)

63709 Circuit attorney's employees' compensation (4.48)

63710 Collector of revenue's employees' compensation (4.44)

63711 License collectors' employees' compensation (4.28)

63712 Redevelopment of blighted area—5740-54 West Florissant Area (Special)

63713 Redevelopment of blighted area—McCausland Court Area (Special)

63714 Parking of health department employees without payment of fees (17.96.010, 17.96.020)

63715 Redevelopment of blighted area—O'Fallon Scattered Sites III Area (Special)

63716 Redevelopment of blighted area—3237 Barrett Street Area (Special)

63717 Redevelopment of blighted area—Shaw Scattered Sites V Area (Special)

63718 Redevelopment of blighted area—1958 Senate Street Area (Special)

63719 Redevelopment of blighted area—2816 Missouri Avenue Area (Special)

63720 Redevelopment of blighted area—4924 Berthold Avenue Area (Special)

63721 Redevelopment of blighted area—5243 Enright Avenue Area (Special)

63722 Redevelopment of blighted area—4945 Fountain Avenue Area (Special)

63723 Redevelopment of blighted area—5168-72 Raymond Avenue Area (Special)

63724 Redevelopment of blighted area—4641 Washington Avenue Area (Special)

63725 Redevelopment of blighted area—5014 Cates Avenue Area (Special)

63726 Redevelopment of blighted area—2205-07 Sublette Avenue Area (Special)

63727 Redevelopment of blighted area—2601-03 Brannon Avenue Area (Special)

63728 Redevelopment of blighted area—6716-22 Clayton Avenue Area (Special)

63729 Redevelopment of blighted area—5053 Washington Avenue Area (Special)

63730 Redevelopment of blighted area—4319 McPherson Avenue Area (Special)

63731 Redevelopment of blighted area—4312 McPherson Avenue Area (Special)

63732 Street vacation—Dakota/Nebraska (Special)

63733 Redevelopment of blighted area—Fox Grove II and Fox Grove III Apartments Area (Special)

63734 Redevelopment of blighted area—South Broadway/Spruce/South Third/Poplar Area (Special)

63735 Redevelopment of blighted area—2010 South 11th Street Area (Special)

63736 Redevelopment of blighted area—2821-27 Wyoming Street Area (Special)

63737 Redevelopment of blighted area—Benton Park Scattered Sites V Area (Special)

63738 Redevelopment of blighted area—2900 Virginia Avenue Area (Special)

63739 Redevelopment of blighted area—3440-42 Miami Street Area (Special)

63740 Redevelopment of blighted area—3900-32 Illinois Avenue Area (Special)

63741 Redevelopment of blighted area—Bevo Mill Scattered Sites Area (Special)

63742 Redevelopment of blighted area—Virginia Avenue Scattered Sites Area (Special)

63743 Redevelopment of blighted area—5614-18 Summit Avenue Area (Special)

63744 Redevelopment of blighted area—4747 Penrose Street Area (Special)

63745 Redevelopment of blighted area—4800 Hammett Place Area (Special)

63746 Lease to Dunraine U.S. Corporation for mooring rights for ten years (Special)

63747 Distribution of free tobacco products (11.76)

63748 Redevelopment of blighted area—Grand/Dr. Martin Luther King/Francis Area (Special)

63749 Redevelopment of blighted area—Scattered Site Flood Replacement Housing Area (Special)

63750 Street vacation—Elliot/Montgomery (Special)

63751 Redevelopment of blighted area—6226 Northwood Avenue Area (Special)

63752 Redevelopment of blighted area—5099 Waterman Boulevard Area (Special)

63753 Redevelopment of blighted area—4041 Forest Park Boulevard Area (Special)

63754 Redevelopment of blighted area—Garfield Avenue Scattered Sites Area (Special)

63755 Redevelopment of blighted area—6426 Lloyd Avenue Area (Special)

63756 Redevelopment of blighted area—4401 McPherson Avenue Area (Special)

63757 Street vacation—Cole/Carr (Special)

63758 Street vacation—north/south alley bounded by Robert, Vermont, Koeln and Alabama in city block 3064-A (Special)

63759 Street vacation—Idaho/German to city limits (Special)

63760 Street vacation—Ivory/Germania/Alabama/Da-vis/Idaho/Poepping (Special)

63761 Park maintenance agreement with respect to Lemay Park (Special)

63762 Amends Ord. 63456—legal description of north/south alley in city block 3752, Delmar, Vandeventer, Washington and Sarah (Special)

63763 Temporary street closure—2900 block of University Street at west end curb of Glasgow Avenue (Special)

63764 Appropriation of prevention funds for expanded recreational programming (Special)

63765 Twenty-second appropriation from airport development fund into Kinloch Land Acquisition Ordinance 58493 (Special)

63766 Redevelopment of blighted area—2122 Salisbury Area (Special)

63767 Airport contract service agreement for employees shuttle bus services with Huntleigh Transportation Services, Inc. (Special)

63768 Airport shoeshine concession agreement (Special)

63769 Forest park advisory board (3.96)

63770 Supplemental appropriation to the annual budget (Special)

63771 Budget for fiscal year 1996-1997 (Special)

63772 Repeals Ord. 63676 (Repealer)

63773 Contract with Missouri Department of Health for a grant for Teen Leader Training/Postponing Sexual Involvement (Special)

63774 Repeals and replaces § 17.10.040, speed regulations (17.10.040)

63775 Contract with U.S. Department of Housing and Urban Development for supportive housing program (Special)

63776 Defacement of buildings by juveniles (15.79)

63777 Establishes Cathedral Square special business district (Special)

63778 Submission to voters of proposed tax levy for Cathedral Square special business district (Special)

63779 Medical examiners office employees' compensation (4.56)

63780 Establishes central west end southeast business district (Special)

63781 Submission to voters of proposed tax levy for central west end southeast business district (Special)

63782 Appropriation for expenses of the police department (Special)

63783 Submission to voters of use tax of 2.625 percent (Special)

63784 Curfew for minors; repeals Ords. 58264 and 58540 (15.110.010—15.110.070)

63785 Requires parents to pick up juvenile for curfew violation (15.110.080)

63786 Borrowing of funds for general revenue (Special)

63787 Motor vehicles held for evidence (17.94)

63788 Airport contract with United Airlines (Special)

63789 Contract for environmental impact statement (Special)

63790 Amends Bridgeton land acquisition ordinance (Special)

63791 Dedicates softball filed in Francis Park to Bernie B. J. Leonard (Special)

63792 Easement to MSD for sewers in city block 489 (Special)

63793 Contract for sale of water to St. Charles County (Special)

63794 Easement to St. Louis Water Company (Special)

63795 Airport supplemental appropriation (Special)

63796 Repeals and replaces § 17.16.180, miscellaneous traffic regulations (17.16.180)

63797 Redevelopment of blighted area—Locust Street/Twenty-third Street Area (Special)

63798 Earnings tax on deferred compensation (5.22.160)

63799 Sale of consumer goods to minors during certain times (15.110.090)

63800 Cost of demolition, repair, board up or clean up of buildings and structures—special tax bill (25.64)

63801 Redevelopment of blighted area—Locust Street/Twenty-third Street Area (Special)

63802 City contracts for services subject to city earnings tax (3.02.070)

63803 Repeals and replaces § 15.50.110, noise (15.50.110)

63804 Parking on 2900 block of University Street (Special)

63805 Adopts 1996 BOCA National Fire Prevention Code; repeals Ords. 47304, 61981, 62613 and 62681 (Ch. 25.06)

63806 Adopts 1995 International Mechanical Code; repeals Ord. 63621 (25.03)

63807 Contract for COPS Universal Hiring Program (Special)

63808 Rezone—city block 5642 to F (Special)

63809 Street vacation—north/south alley and eighty-three-foot portion of east/west alley in city block 5642 (Special)

63810 City Justice Center acquisition and financing (Special)

63811 City Justice Center/prisoner detention facility purchase and condemnation (Special)

63812 Street vacation—Indiana Avenue from Miami Street to the south edge of the twenty-foot-wide east/west alley in city block 1562 (Special)

63813 Cashing of personal checks by city employees (4.60)

63814 Temporary street closure—19th, Benton and Warren (Special)

63815 Street closure—Humphrey/Gravois (Special)

63816 Treasurer's Office employees salaries; repeals Ord. 63182 (4.26)

63817 Parking Division Office employees salaries; repeals Ord. 63181 (4.30)

63818 Temporary street closure—16th/O'Fallon (Special)

63819 Creates the City Public Transit Sales Tax Trust Fund (Special)

63820 Transportation trust fund appropriation (Special)

63821 Street vacation—north/south alley in city block 625 (Special)

63822 Street vacation—alley in city block 1901 (Special)

63823 Street vacation—Tesson Street from Van Buren Street to railroad right-of-way (Special)

63824 Appropriation for Parking Division and Kiel parking facilities (Special)

63825 Washington Park Cemetery project; repeals Ord. 63672 (Special)

63826 Establishes per ward expenditures of the Ward Capital Improvement Account (Special)

63827 Lambert-St.Louis Airport public work and improvement program (Special)

63828 Lambert-St.Louis Airport sixth amendatory agreement to the airport use agreement with TWA (Special)

63829 Lambert-St.Louis Airport concession agreement with Hertz (Special)

63830 Lambert-St.Louis Airport concession agreement with Dollar Rent-A-Car (Special)

63831 Lambert-St.Louis Airport concession agreement with Budget Rent-A-Car (Special)

63832 Lambert-St.Louis Airport concession agreement with Avis Rent-A-Car (Special)

63833 Lambert-St.Louis Airport concession agreement with National Car Rental (Special)

63834 Lambert-St.Louis Airport concession agreement with Alamo Rent-A-Car (Special)

63835 Establishes the Forest Park Program Management Fund (Special)

63836 Nuisance activities—residential and commercial properties (Ch. 15.42)

63837 Anti-Gang Initiative Program (Special)

63838 Costs related to damage of buildings or structures by fire, explosion or other casualty loss (25.66)

63839 Prohibits use of roller skates, in-line skates and skateboards in a certain area (17.20.125)

63840 Repeals and replaces §§ 2, 8 and 11 of Ord. 62622, Central west end north special business district tax rate (Special)

63841 Submission to voters (Special)

63842 Carbon monoxide detectors (25.60)

63843 Easement granted to Trigen-St.Louis Energy Corporation (Special)

63844 Lease agreement with U.S. Corps of Engineers (Special)

63845 Contract for programs for people with AIDS (Special)

63846 Amends Ord. 63771, communications infrastructure plan development (Special)

63847 Prohibits issuance of any package or drink liquor licenses for any currently unlicensed premises within the boundaries of the First Ward (Not codified)

63848 Hepatitis B immunizations for public employees (Special)

63849 Temporary street closure—3800 block of Sullivan Avenue at Vandeventer Avenue (Special)

63850 Prohibits personal service contract with any city employee who has been terminated, retired or resigned as a result of a violation of Article VIII, Section 2 of the City Charter

63851 Rezone—city block 5716 to J (Special)

63852 Redevelopment of blighted area—2027 South Eleventh Street Area (Special)

63853 Redevelopment of blighted area—4500/4600/4700/Varrelman Avenue Scattered Sites Area (Special)

63854 Redevelopment of blighted area—3647 South Kingshighway Boulevard Area (Repealed by 63893)

63855 Grants permission to Terminal Railroad Association to construct certain railroad tracks (Special)

63856 Street closure—2100 block of East Adelaide at West Florissant (Special)

63857 Redevelopment of blighted area—4610 Delmar Boulevard Area (Special)

63858 Prohibits board-up signage (26.68.175)

63859 Redevelopment of blighted area—4256-62 West Finney Avenue Area (Special)

63860 Redevelopment of blighted area—4555 Washington Avenue Area (Special)

63861 Redevelopment of blighted area—2008 Rutger Street Area (Special)

63862 Redevelopment of blighted area—Gilmore Avenue Scattered Sites Area (Special)

63863 Redevelopment of blighted area—4517-27 Newberry Terrace Area (Special)

63864 Redevelopment of blighted area—4061-69 Dr. Martin Luther King Drive Area (Special)

63865 Redevelopment of blighted area—Gravois/South Grand/Meramec Area (Special)

63866 Contract for funds to fund a supportive housing program (Special)

63867 Airport capital improvement program (Special)

63868 Airport-Washington Park Cemetery Project (Special)

63869 Tenth supplemental appropriation from airport development fund into Southeast Berkeley Land Acquisition Ordinance 60542 (Special)

63870 Grant agreement to provide for airfield lighting control system (Special)

63871 Grant agreement to provide for land for noise mitigation (Special)

63872 Grant agreement to provide for construction of acute angle taxiways for runway 12L/30R—Phase 1 (Special)

63873 Airport master plan appropriation (Special)

63874 Easement agreement in order to accommodate construction required as part of the new east terminal parking garage (Special)

63875 Airport use agreement with America West Airlines (Special)

63876 First amendment to an airport operating agreement for public parking facilities (Special)

63877 Amends § 1 of Ord. 62763, Public works and improvement program at airport (Special)

63878 First amendment to a concessionaire agreement with AT&T (Special)

63879 Federal block grant, home investment partnership and emergency shelter grant and AIDS entitlement through HUD (Special)

63880 Alley closure—north-south alley in city block 1319 at Allen (Special)

63881 Supplemental appropriation for Chain of Rocks and Howard Bend Water Treatment Plants (Special)

63882 Sale of property to county water company; repeals Ord. 63655 (Special)

63883 Supplemental appropriation for program management services related to the Forest Park Master Plan (Special)

63884 Street name change—Barnes Hospital Plaza to Barnes-Jewish Hospital Plaza (Special)

63885 Rezone—city blocks 3390, 3399 and 3400 to B (Special)

63886 Repeals Ord. 63362 (Repealer)

63887 Redevelopment of blighted area—1433 North Union Boulevard Area (Special)

63888 Redevelopment of blighted area—Bates/Thirty-Eighth/Walsh Area (Special)

63889 Street vacation—Thatcher Avenue, city blocks 4221 and 4222W (Special)

63890 Redevelopment of blighted area—4014-18 Grove St. Area (Special)

63891 Redevelopment of blighted area—7807 Hall Street Area (Special)

63892 Redevelopment of blighted area—1411-15 Penrose Avenue (Special)

63893 Repeals Ord. 63854 (Repealer)

63894 Temporary street closure—Clara at Cabanne (Special)

63895 Redevelopment of blighted area—4333 Maryland Avenue Area (Special)

63896 Redevelopment of blighted area—3720 South Utah Place Area (Special)

63897 Redevelopment of blighted area—Camellia/North Taylor Area (Special)

63898 Redevelopment of blighted area—4200 and 4411 East Holly Area (Special)

63899 Redevelopment of blighted area—4639-41 East Pope Area (Special)

63900 Redevelopment of blighted area—4502-06 East Pope Area (Special)

63901 Redevelopment of blighted area—North Newstead Scattered Site II Area (Special)

63902 Redevelopment of blighted area—3605-11 Clarence Area (Special)

63903 Easement to MSD on Riverview (Watkins Creek) (Special)

63904 Redevelopment of blighted area—1911 and 2011 Congress Area (Special)

63905 Redevelopment of blighted area—2201 Arsenal and 2868-70 Missouri Area (Special)

63906 Redevelopment of blighted area—3008 Louisiana Area (Special)

63907 Redevelopment of blighted area—2801 Lemp Area (Special)

63908 Condemnation and occupancy of certain structures (Ch. 25.01)

63909 Contract with Metro East Municipal Joint Action Water Agency for sale of water (Special)

63910 Sale of property—1213-1215 Redd Foxx Lane (Special)

63911 Sale of property—1316-1318 Glasgow (Special)

63912 Contract with state for cardiovascular/diabetes disease control services, Targeted Health Initiative (Special)

63913 Issuance of parking revenue refunding bonds in the amount not to exceed $27,000,000.00 (Special)

63914 Voter submission—increase fines to $1,000.00 (Special)

63915 Temporary street closure—Enright/Newstead (Special)

63916 Sale of property—city blocks 2144, 672E and 669E to Grossman Iron and Steel Co. (Special)

63917 Sale of property—3822 Forest Park to K.S. Partnership (Special)

63918 Resale of tickets (8.102)

63919 Grant for the Local Law Enforcement Block Grants Program (Special)

63920 Bellefontaine Neighbors Habilitation Center—discharge of restrictive covenants; repeals Ord. 63120 (Special)

63921 Redevelopment of blighted area—29 Lenox Place Area (Special)

63922 Redevelopment of blighted area—1703-11 and 1717 Annie Malone Drive Area (Special)

63923 Redevelopment of blighted area—Maffitt Scattered Sites Area (Special)

63924 Redevelopment of blighted area—St. Ferdinand Scattered Sites Area (Special)

63925 Redevelopment of blighted area—Bel Glade Scattered Sites Area (Special)

63926 Redevelopment of blighted area—Salisbury/25th/Natural Bridge Area (Special)

63927 Redevelopment of blighted area—715-719 Soulard Area (Special)

63928 Redevelopment of blighted area—6053 Waterman Area (Special)

63929 Redevelopment of blighted area—5037 Washington Area (Special)

63930 Redevelopment of blighted area—4341 and 4536 Westminster Area (Special)

63931 Redevelopment of blighted area—2005-07 Geyer and 2014-18 South 12th Area (Special)

63932 Rezone—city blocks 4918 and 4919 to F Zone (Special)

63933 Redevelopment of blighted area—3817 Shaw Area (Special)

63934 Redevelopment of blighted area—1801-11 Pestalozzi Area (Special)

63935 Agreement with Airport Terminal Services, Inc. (Special)

63936 Airport—8th Supplemental for Bridgeton Land Acquisition (Special)

63937 Airport—increase multi-year expansion (Special)

63938 Airport-increase multi-year expansion (Special)

63939 Airport agreement for food and beverage concession (Special)

63940 Redevelopment of blighted area—N.Grand/I-70 Area (Special)

63941 Contract with State Department of Health for Abstinence Education Program (Special)

63942 Contract with State Department of Health for a grant to fund nursing consultation to child care facilities (Special)

63943 Reconstruction of Columbia Avenue Bridge, Delmar Metrolink, Sixth Street, Broadway/7th Street and road construction (Special)

63944 Redevelopment of blighted area—4361 Olive Street Area (Special)

63945 Redevelopment of blighted area—Edna Street Scattered Sites Area (Special)

63946 Redevelopment of blighted area—804, 810 McLaren Avenue Area (Special)

63947 Redevelopment of blighted area—1919 Utah Street Area (Special)

63948 Redevelopment of blighted area—2907-09 Texas Area (Special)

63949 Rezone—city block 1253 to G (Special)

63950 Redevelopment of blighted area—5322 Oriole Street Area (Special)

63951 Redevelopment of blighted area—1901, 1935 Arsenal Area (Special)

63952 Redevelopment of blighted area—Wyoming Scattered Sites Area (Special)

63953 Redevelopment of blighted area—2906, 2923, and 3123 Lemp Area (Special)

63954 Redevelopment of blighted area—3118, 3145, and 3153 Texas Area (Special)

63955 Court costs for police training; repeals Ord. 61294 (3.08.370, 3.308.375, 3.08.380)

63956 Lease agreement with Municipal Theatre Association of St. Louis (Special)

63957 Establishes Cherokee-Lemp Special Business District (Special)

63958 Voter submission—Cherokee-Lemp Business District tax (Special)

63959 Adds §§ 4.10.420(D)(6), (7) and (8) and amends §§ 4.10.420(D)(2) and (5), classified service plan (4.10.420)

63960 Street closure—University Street and Glasgow (Special)

63961 Redevelopment of blighted area—3738 Meramec Area (Special)

63962 Street closure—Windsor Place and Spring Avenue (Special)

63963 Redevelopment of blighted area—1834-36 and 1842-44 Russell Area (Special)

63964 Redevelopment of blighted area—2316 So. 12th Street Area (Special)

63965 Redevelopment of blighted area—6747-49 Garner Avenue (Special)

63966 Redevelopment of blighted area—5341 Arsenal Street Area (Special)

63967 Redevelopment of blighted area—1010 Hi-Pointe Place Area (Special)

63968 Redevelopment of blighted area—4306 Washington Boulevard Area (Special)

63969 Supplemental appropriation to annual budget (Special)

63970 Easement to Union Electric in city block 2034 (Special)

63971 Appropriation from Forest Park Fund (Special)

63972 Redevelopment of blighted area—3914-18-22 Hereford Avenue Area (Special)

63973 Redevelopment of blighted area—4130-42 DeTonty Avenue Area (Special)

63974 Prohibition of crossing barricade or police line (15.55)

63975 Redevelopment of blighted area—915 Ann Area (Special)

63976 Prohibition of commercial vehicles near Gravois and Sidney (17.30.021)

63977 Milling and resurfacing of alleys (Special)

63978 Alley vacation—city block 2330 (Special)

63979 Easement to MSD in city blocks 2671, 2710 and 2614 (Special)

63980 Street closure—Victor Street and Salena Avenue (Special)

63981 Contract for airport news and gift concession with Paradies-Concession II-Arch Inc. (Special)

63982 Redevelopment of blighted area—4456-58 Oakland Avenue Area (Special)

63983 Easement to Laclede Gas Company in city block 3279 (Special)

63984 Agreement for repairs at Soulard Market (Special)

63985 Fake identification (15.117)

63986 Lease to Art Museum in Forest Park (Special)

63987 Redevelopment of blighted area—8128 Church Road Area (Special)

63988 Adds § 4.18.157 and repeals and replaces §§ 4.18.025, 4.18.185 and 4.18.195, Firemen's Retirement System (4.18.025, 4.18.157, 4.18.185, 4.18.195)

63989 Temporary street closure—Clara at Cabanne (Special)

63990 Authorizes Board of Public Services to issue permits for the use of land in Forest Park for construction/storage yard purposes (Special)

63991 Contract for solid waste disposal with Waste Management, Inc. (Special)

63992 Sale of real property at 1528N Kingshighway to Choice Leaders of Tomorrow (Special)

63993 Sale of real property at 1355 North Garrison Avenue to Lillie Pearson (Special)

63994 Redevelopment of blighted area—4531 Nebraska and 4305 Minnesota Area (Special)

63995 Enterprise Zone Satellite expansion to include area of Natural Bridge, Kienlen, railroad tracks and Goodfellow (Special)

63996 Temporary street closure—17th/Cass, Mullanphy/Helen, Mullanphy/16th, and 18th/Cass (Special)

63997 Airport—fourth supplemental appropriation for one million eight hundred thousand dollars (Special)

63998 Airport—Southeast Berkeley Land Acquisition amendment (Special)

63999 Mobile phones (4.63)

64000 Redevelopment of blighted area—2804-06 59th Street and 2128 Forest Avenue Area (Special)

64001 Parking for jurors with disabilities (Special)

64002 Redevelopment of blighted area—-4939-41 and 4983 Lindenwood Avenue Area (Special)

64003 Redevelopment of blighted area—-4730 Olive Area (Special)

64004 Immunization for hepatitis A for employees of restaurants, day care centers and others deemed necessary by the Health Commissioner (Special)

64005 Redevelopment of blighted area—-2623 South 12th and 3322 Halliday Avenue Area (Special)

64006 Redevelopment of blighted area—-2830-36 and 2833 McNair Area (Special)

64007 Airport—contract with Smarte Carte (Special)

64008 Airport—first amendment to indenture of lease with Ninety-Fourth of St. Louis, Inc. (Special)

64009 Sale of property in city block 1950 to St. Louis University (Special)

64010 Parking in Third Ward (17.93)

64011 George L. Vaughn Residences at Murphy Park resubdivision (Special)

64012 Contract between Circuit Attorney and State for grant for violence against women program (Special)

64013 Airport—Contract-Project 3-29-0085-43 for land acquisition for noise mitigation (Special)

64014 Airport—grant agreement with U.S. for environmental impact statement (Special)

64015 Airport—public work and construction (Special)

64016 Issuance of bonds for Forest Park improvements (Special)

64017 1997 50/50 Sidewalk Program (Special)

64018 Redevelopment of blighted area—2860 Kingshighway Area (Special)

64019 Redevelopment of blighted area—Arkansas/Chippewa/Marine Area (Special)

64020 Redevelopment of blighted area—5810-12 Michigan Area (Special)

64021 Designates City Hall Room 234 as the "Congressional Room" (Special)

64022 Redevelopment of blighted area—4351 Lafayette Avenue Area (Special)

64023 Redevelopment of blighted area—4228-38 Norfolk and 1339 Ripple Street Area (Special)

64024 Street vacation—Park Avenue from Grand to Spring; Folsom from Grand to previously vacated Folsom; Folsom from Spring to previously vacated Folsom; Cardinal Glennon Way from Folsom to alley (Special)

64025 Redevelopment of blighted area—6204 Crescent Area (Special)

64026 Redevelopment of blighted area—3939-41 Michigan Avenue Area (Special)

64027 Redevelopment of blighted area—Lemp Brewery Area (Special)

64028 Redevelopment of blighted area—4657 Essex and 4601 Pope Area (Special)

64029 Redevelopment of blighted area—4419 Rosalie Street/3918-20 Lexington Avenue/4224 Holly Avenue Area (Special)

64030 Redevelopment of blighted area—274-88 Skinker/6180-92 Pershing Area (Special)

64031 Redevelopment of blighted area—3300 North Florissant Area (Special)

64032 Redevelopment of blighted area—East Adelaide/West Florissant/Warne Area (Special)

64033 Redevelopment of blighted area—1424-26 Mallinckrodt Street and 1411-15 Destrehan Street Area (Special)

64034 Redevelopment of blighted area—Tower Grove South Scattered Sites V Area (Special)

64035 Redevelopment of blighted area—Oregon/McNair/Allen/Victor Area (Special)

64036 Redevelopment of blighted area—3958-64 Washington Area (Special)

64037 Redevelopment of blighted area—Shaw Boulevard Scattered Sites VI Area (Special)

64038 Redevelopment of blighted area—6155 South Grand Boulevard Area (Special)

64039 Street vacation—Texas from St. Vincent to alley in city block 2148 (Special)

64040 Street vacation—Texas from Miami to Potomac (Special)

64041 Street vacation—Wise Avenue and alley in city block 5592, abutting 4938 Wise (Special)

64042 Alley vacation—Sarpy in city block 3955 (Special)

64043 Street vacation—Theodosia from Hodiamont to Bi-State right-of-way, abutting city blocks 5001 and 5002 (Special)

64044 Alley vacation—Locust in city block 180 (Special)

64045 Terminal Railroad crossings in Second, Fifth and Seventh Wards (Special)

64046 Alley vacation—city block 1950 (Special)

64047 Structural and safety assessment report required before protection system or fence erected (25.09)

64048 Pension benefits for members of Employee Retirement System (Repealed by 64833)

64049 Rezone-city blocks 926, 927, 2243, 1949 and 986 to I Central Business District (Special)

64050 Repeals University Heights Corporation Community Unit Plan (Special)

64051 Adds §§ 26.100.030 and 26.100.040, zoning (26.100.030, 26.100.040)

64052 Sale of real estate to Department of Conservation (Special)

64053 Amends landmark design standards and preservation plan for the Cherokee-Lemp Historic District and Lemp Brewery Landmark Site, City Landmark No. 80 (Special)

64054 Repeals and replaces § 26.16.080(C) and repeals §§ 26.74.010 and 26.74.020, off-street parking (26.16.080)

64055 Rezone—certain property in city block 5419 to A Single Family (Special)

64056 Redevelopment of blighted area—4421-25 Hampton Area (Special)

64057 Street vacation—Finney east of Taylor (Special)

64058 Budget for fiscal year 1997-1998 (Special)

64059 Street vacation—Dolman Street in city block 1253 (Special)

64060 Street vacation—Tracy Avenue from Oriole in C.B. 5415 (Special)

64061 Airport—Agreement amendment for public pay coin telephone concession with SW Bell (Special)

64062 Airport—Agreement amendment for public pay non-coin telephone concession with AT&T (Special)

64063 Airport—noise management system (Special)

64064 Supplemental appropriation for current expenses (Special)

64065 Airport—Kinloch land acquisition (Special)

64066 Airport—Ferguson land acquisition (Special)

64067 Airport—Washington Park Cemetery costs (Special)

64068 Airport—Southeast Berkeley land acquisition (Special)

64069 Airport—Bridgeton land acquisition (Special)

64070 Airport—Robertson land acquisition (Special)

64071 Borrowing of funds (Special)

64072 Contract—long distance public pay coin telephone with AT&T (Special)

64073 Contract—Washington University for a development and testing for populations at high risk for gonorrhea—Stage 1 program (Special)

64074 Redevelopment of blighted area—4347-55 Page (Special)

64075 Two-way stop—Oakland Ave near Lawn Place (Special)

64076 Repeals and replaces §§ 4.16.340 and 4.16.360, city employee retirement system—board of trustees (Repealed by 64833)

64077 Redevelopment of blighted area—4219-33 Norfolk Avenue (Special)

64078 Redevelopment of blighted area—2001 Arsenal, 1904 and 2036 Sidney (Special)

64079 Redevelopment of blighted area—3701-17 and 3731-3935 North Broadway Area (Special)

64080 Redevelopment of blighted area—5535 and 5702 Era (Special)

64081 Redevelopment of blighted area—2911 Nebraska and 3500 Halliday (Special)

64082 Redevelopment of blighted area—2901-07 Wisconsin, 3239-41 Indiana and 3331 Minnesota (Special)

64083 Redevelopment of blighted area—9100 Riverview Boulevard (Special)

64084 Redevelopment of blighted area—4640 Tennessee, 4638 and 4746 Virginia and 4651 Minnesota (Special)

64085 Street vacation—east/west alley in city block 3927 (Special)

64086 Street vacation—Theresa from Lindell in city block 1956 (Special)

64087 Redevelopment of blighted area—Maffit/Cupples P1/Northland Terry (Special)

64088 Redevelopment of blighted area—4438 Bitchef and 3748 Shreve (Special)

64089 Street vacation—east/west alley in city block 3959 (Special)

64090 Stop sign—three-way stop at Morganford and Neosho; repeals Ordinance 52450 (Special)

64091 Street closing—temporarily Penrose at Blair (Special)

64092 Street closing—permanently Bremen at Eleventh (Special)

64093 Street closing—permanently Bremen at Fourteenth (Special)

64094 Street closing—permanently Bremen at 20th (Special)

64095 Street closing—temporarily Hyams near Dodier (Special)

64096 Airport—amending Section Two of Master Plan in Ordinance 63873 (Special)

64097 Airport—general environmental planning project (Special)

64098 Parking Commission—payment of operating expenses (Special)

64099 Stop sign—Locust at Leffingwell (Special)

64100 Redevelopment of blighted area—1207-13 Missouri (Special)

64101 Lease agreement extension—mooring of Becky Thatcher and Tom Sawyer (Special)

64102 Professional service contracts for offices of Mayor, Comptroller, Board of Aldermen and St. Louis Development Agency (3.97)

64103 Professional service contracts for Board of Public Service (3.98)

64104 Repeals and replaces §§ 6.08.010—6.08.040, emergency work (6.08.010, 6.08.020, 6.08.030, 6.08.040)

64105 Street performers; repeals § 15.50.130 (20.55)

64106 Redevelopment of blighted area—Sarah/Dr. Martin Luther King/Whittier Area (Special)

64107 Redevelopment of blighted area—3208-22 Arsenal (Special)

64108 Prohibiting package or drink license in 27th Ward for one year, July 98 (Special)

64109 Voter submission—Charter amendment for residence of City employees (Charter Art. VIII)

64110 Prohibiting package or drink license in 2nd Ward for one year, July 98 (Special)

64111 Voter submission—one-fourth of one percent transportation sales tax (Special)

64112 Sale of property—3936 Delmar Boulevard in city block 3752 to Gordons (Special)

64113 Sale of property—property in City Block 6484 to St. Stanislaus Kostka Roman Catholic Church (Special)

64114 Amends § 23.29.010, exclusion from taxes (23.29.010)

64115 Sale of property—property in city block 4810 to St. Louis Pet Clinic (Special)

64116 Repeals and replaces §§ 2, 5 and 7 of Ord. 59121, solid waste (11.02.005—11.02.100, 11.02.140—11.02.190, 11.02.200—250)

64117 Blighting-Betty's Walk Area; repeals Ord. 63403 (Special)

64118 Appropriation to Bi-State from Transportation Trust Fund (Special)

64119 Creating City Public Transit Sales Tax Trust Fund (Special)

64120 Airport revenue bonds issuance (Special)

64121 Sale of real estate—Carr Square Community Center, 1629 Biddle to St. Louis Housing Authority (Special)

64122 Forest Park—contract with Forest Park Forever, Inc.(Special)

64123 Kiel Site Lease Revenue Refunding Bonds, Series 1997A (Special)

64124 Kiel Site Lease Revenue Refunding Bonds, Series 1997B (Special)

64125 Sale of real estate—property in city block 4863 to Blackstone Group (Special)

64126 Redevelopment of blighted area—719 Lami and 2133 Victor (Special)

64127 Redevelopment of blighted area—1128-32 Blendon Place (Special)

64128 Redevelopment of blighted area—5851 DeGiverville (Special)

64129 Redevelopment of blighted area—5861 DeGiverville (Special)

64130 Redevelopment of blighted area—4934-36 McPherson (Special)

64131 Redevelopment of blighted area—North Newstead/Penrose Area (Special)

64132 Redevelopment of blighted area—1534 Gregg (Special)

64133 Redevelopment of blighted area—6448 Nashville (Special)

64134 Redevelopment of blighted area—2719-27 Texas (Special)

64135 Redevelopment of blighted area—2706 and 2711 Lemp (Special)

64136 Redevelopment of blighted area—2723 South 11th Street (Special)

64137 Redevelopment of blighted area—3815 Greer (Special)

64138 Redevelopment of blighted area—Adelaide Scattered Site (Special)

64139 Redevelopment of blighted area—1236 Baden (Special)

64140 Redevelopment of blighted area—2329 South Compton (Special)

64141 Redevelopment of blighted area North Tucker/Olive/Pine (Special)

64142 Redevelopment of blighted area—1916 Hickory (Special)

64143 Redevelopment of blighted area—2131-33 Marconi (Special)

64144 Redevelopment of blighted area—6215 Fyler (Special)

64145 Redevelopment of blighted area—4311 McPherson (Special)

64146 Redevelopment of blighted area—3645 Nebraska (Special)

64147 Redevelopment of blighted area—Lindell/Whittier (Special)

64148 Redevelopment of blighted area—1124 Blendon Place (Special)

64149 Redevelopment of blighted area—807-15 Geyer (Special)

64150 Redevelopment of blighted area—2127 Allen (Special)

64151 Redevelopment of blighted area—2656 Shenandoah (Special)

64152 Redevelopment of blighted area—2020 Menard and 918 Russell (Special)

64153 Redevelopment of blighted area—2213 South 11th Street (Special)

64154 Enterprise Zone redesignation (Special)

64155 Redevelopment of blighted area—3324-44 Ohio (Special)

64156 Redevelopment of blighted area—2901 Macklind (Special)

64157 Redevelopment of blighted area—5543 Hebert (Special)

64158 Redevelopment of blighted area—Grand Oak Village (Special)

64159 Water department—underground storage tanks (Special)

64160 Water department—basin improvements (Special)

64161 Water department—seismic improvements as Stacy Park Reservoir (Special)

64162 Water department—improvements of water works system (Special)

64163 Water department—booster pump stations (Special)

64164 Amends §§ 11.04.090 and 11.04.110, weeds (11.04.090, 11.04.110)

64165 Street vacation—Theresa from Rutger to Caroline (Special)

64166 Street merchants and performers—prohibited areas (20.56.017)

64167 Adds §§ 26.08.432, 26.52.025 and 26.56.025 and repeals and replaces §§ 26.32.025, 26.44.020, 26.44.025, 26.52.020 and 26.60.025, zoning (26.08.432, 26.32.025, 26.44.020, 26.44.025, 26.52.020, 26.52.025, 26.56.025, 26.60.025)

64168 Stop sign—two-way Delor at Adkins (Special)

64169 Stop sign—four-way Garfield and Prairie (Special)

64170 Stop sign—four-way Cote Brilliante and Prairie (Special)

64171 Contract—grant for recycling program (Special)

64172 Street closing—temporary San Francisco/Kingshighway (Special)

64173 Street closing—temporary Lotus/Kingshighway (Repealed by 64629)

64174 Contract—grant for smoke generator used for opacity training (Special)

64175 Contract with Benton Park Neighborhood Association for restoration of bridge (Special)

64176 Street closing—temporary Palm/Kingshighway (Repealed by 64630)

64177 Contract—FY 1997 Local Law Enforcement Block Grants Program (Special)

64178 Outdoor pay telephones (Ch. 25.01)

64179 Street closing—temporary Annetta/Halls Ferry Road (Special)

64180 Contract—St. Louis County for REJIS (Special)

64181 Contract—grant for prenatal and early childhood nurse home visitation services (Special)

64182 Street vacation—city block 1057 and 1058 (Special)

64183 Grant for funding under the federal community development block grant, home investment partnership, emergency shelter grant and housing opportunities for persons with AIDS (Special)

64184 Grant—airport/FAA authorized by Ordinance 64014 (Special)

64185 Appropriation—one fourth of one percent transportation ballot proposition (Special)

64186 Grant—airport/FAA for taxiways and aprons (Special)

64187 Grant—airport/FAA for noise mitigation (Special)

64188 Grant—airport/FAA for land acquisition for noise mitigation (Special)

64189 Grant—airport/FAA for noise mitigation through acoustical treatment (Special)

64190 Quitclaim deed (Special)

64191 Appropriations (Special)

64192 Airport—noise mitigation program (Special)

64193 Memorandum of understanding with International Brotherhood of Electrical Workers Local 4 (Special)

64194 Memorandum of understanding with International Brotherhood of Electrical Workers Local 1 (Special)

64195 Repeals and replaces § 26.84.020, board of adjustment (26.84.020)

64196 Rezone—city blocks 4804, 4809, and 4810 to G (Special)

64197 Redevelopment of blighted area—2849 Utah Street (Special)

64198 Redevelopment of blighted area—5183 Cabanne Avenue (Special)

64199 Redevelopment of blighted area—4241-63 Maryland Avenue (Special)

64200 Redevelopment of blighted area—3186-88 Oak Hill (Special)

64201 Redevelopment of blighted area—3668-88 S. Broadway (Special)

64202 Redevelopment of blighted area—Soulard Loft (Special)

64203 Redevelopment of blighted area—4257 Miami (Special)

64204 Redevelopment of blighted area—8300-20 Dickman Park Road (Special)

64205 Redevelopment of blighted area—2733 Ivanhoe (Special)

64206 Redevelopment of blighted area—3314-20 Lemp Avenue (Special)

64207 Redevelopment of blighted area—3530 Missouri and 3537 Nebraska (Special)

64208 Redevelopment of blighted area—3005-07 Osage (Special)

64209 Private street, curb, sidewalk and alley construction regulations (20.18.130, 20.18.140, 20.18.150, 20.18.160)

64210 Lease agreement—St. Louis Public Schools Gateway Institute of Technology (Special)

64211 Stop sign—two-way Franklin and Garrison (Special)

64212 Stop sign—two-way Goodfellow and Greer (Special)

64213 Street vacation—north/south alley in city block 581 and 583-W (Special)

64214 Street closing—temporary Highland/Kingshighway (Special)

64215 Prohibits issuance of package or drink license for one year in Tenth Ward (Repealed by 64439)

64216 Grant—department of health to fund program for sanitation inspection for child care facilities (Special)

64217 Airport—public work and improvement (Special)

64218 Airport—parking and roadway improvement (Special)

64219 Airport—terminal airfield improvement (Special)

64220 Airport—real and personal property rights acquisition (Special)

64221 Airport—passenger facility charge (Special)

64222 Airport—Bookmark Inc. concession (Special)

64223 Authorizes reconstruction of Delmar bridge, Delmar metrolink enhancement phase II, North Riverfront bike trail phase II and landsowne bridge (Special)

64224 Redevelopment area designation—4548 West Pine (Special)

64225 Redevelopment area TIF—4548 West Pine (Special)

64226 Redevelopment area agreement—4548 West Pine (Special)

64227 Redevelopment of blighted area—Fox Scattered Sites (Special)

64228 Redevelopment of blighted area—St. Louis Scattered Sites (Special)

64229 Redevelopment of blighted area—705 Olive Building (Special)

64230 Redevelopment of blighted area—5500 S. Broadway (Special)

64231 Redevelopment of blighted area—2715-19 Missouri (Special)

64232 Redevelopment of blighted area—2-90 South Fourth Street (Special)

64233 Redevelopment of blighted area—1019 Shenandoah (Special)

64234 Redevelopment of blighted area—South Broadway/Lemp/Osceola (Special)

64235 Repeals and replaces § 10.04.170, adoption of stray animals (Repealed by 65206)

64236 Sale of real estate—property in city blocks 775, 776 and 777 to Garrett A. Balke, Inc. (Special)

64237 Airport—appropriation from airport contingency fund to annual budget (Special)

64238 Airport—approves capital improvements (Special)

64239 Airport—approves capital improvements (Special)

64240 Expands boundaries of central west end south business district (Special)

64241 Central west end south business district tax proposal (Special)

64242 Cash match alley improvement program (20.18.170, 20.18.180, 20.18.190)

64243 Sale of real estate—property at 4375 West Belle to Loistine Stewart (Special)

64244 Redevelopment of blighted area—4974 Lotus and 5165 Lexington (Special)

64245 Redevelopment of blighted area—3500 and 3521 Herbert Street (Special)

64246 Redevelopment of blighted area—North Grand/Penrose as blighted by Ordinance 63005 (Special)

64247 Redevelopment of blighted area—10th Street/11th Street/Lami Street Scattered Sites (Special)

64248 Stop sign—two-way Boyle at Maryland (Special)

64249 Redevelopment of blighted area—North Spring/Dodier (Special)

64250 Redevelopment of blighted area—3235 Regal Place (Special)

64251 Parking prohibited, except for US marshal vehicles on Tucker from Walnut to Market (Special)

64252 Stop sign—two-way Boyle at Norfolk (Special)

64253 Funds transfer (Special)

64254 Prohibits issuance of certain liquor licenses in Ward 21 for one year (Special)

64255 Redevelopment of blighted area—O'Fallon Scattered Sites (Special)

64256 Contract—Health Department with State for immunization action plan (Special)

64257 Contract—Circuit Attorney with State for victim services expansion (Special)

64258 Tax increment revenue for West Pine development (Special)

64259 Passenger restraint system; repeals Ordinances 59123 and 60668 (17.82, 17.84)

64260 Redevelopment of blighted area—1820-24 Arsenal Street (Special)

64261 Redevelopment of blighted area—4409 South Spring (Special)

64262 Redevelopment of blighted area—4110 and 4114 Virginia (Special)

64263 Redevelopment of blighted area—6700 South Broadway (Special)

64264 Redevelopment of blighted area—2006 Allen (Special)

64265 Redevelopment of blighted area—2713 Winnebago (Special)

64266 Redevelopment of blighted area—5423, 5425 and 5427 Arsenal (Special)

64267 Redevelopment of blighted area—5606 South Magnolia (Special)

64268 Redevelopment of blighted area—5514 Columbia (Special)

64269 Redevelopment of blighted area—4116 Castleman (Special)

64270 Redevelopment of blighted area—5429 Algernon (Special)

64271 Stop sign—two-way Skinker at Washington (Special)

64272 Street closing—permanently for various city streets (Special)

64273 Removal of items from sidewalks (Repealed by 66376)

64274 Sale of real estate—Homer G. Phillips School of Nursing (city block 3676) to Annie Malone Children and Family Center, Inc. (Special)

64275 Sale of real estate—3963 West Belle to Community Women Against Hardship (Special)

64276 Issuance of pension obligation bonds by St. Louis Municipal Finance Corporation (Special)

64277 Stop sign—three-way Bates/Eichelberger (Special)

64278 Airport—Fiber optic network backbone project contract (Special)

64279 Airport—W-1W expansion program (Special)

64280 Contract—public pay phone service with SW Bell (Special)

64281 Airport—Boeing contract (Special)

64282 Airport—Airport Terminal Services contract (Special)

64283 Designates housing conservation district—12th and 13th Wards (Repealed by 67914)

64284 Redevelopment of blighted area—4067-69 Hartford Street (Special)

64285 Redevelopment of blighted area—3801 and 3962 Fairview (Special)

64286 Redevelopment of blighted area—3112 Oak Hill and 4062-68 Arsenal (Special)

64287 Redevelopment of blighted area—3160 Alfred (Special)

64288 Street and alley vacation—city blocks 1931, 1217 and 1219 (Repealed by 64383)

64289 Street closing—permanently Bremen at Blair (Special)

64290 Street closing—temporarily 5th Ward (Special)

64291 Redevelopment of blighted area—1927 Compton (Special)

64292 Redevelopment of blighted area—4462 Gibson (Special)

64293 Redevelopment of blighted area—1939 Senate (Special)

64294 Redevelopment of blighted area—4220 Norfolk (Special)

64295 Redevelopment of blighted area—2616 South 12th (Special)

64296 Handicapped parking (17.76.020, 17.76.025)

64297 Alcohol and drug-related traffic offenses—reimbursement (17.40.030)

64298 Charter proposal submission to increase fines to one thousand dollars (Not codified)

64299 Billiard and pool room licensing (8.26.050)

64300 Prostitution and public solicitation (11.56.680)

64301 Sale of real estate—property in city blocks 4906a, 4904 and 4909 to Trustees of Portland Place (Special)

64302 Sale of real estate—Warner Jenkinson Co., 2825 North Market (Special)

64303 Contract—Multimodal Station (Special)

64304 Improvements—Aloe Plaza (Special)

64305 Contract—entrance ramps and unisex accessible toilet construction with Commissioner of Disabled and CDA (Special)

64306 Medical Examiner's office payplan (4.54)

64307 Circuit Attorney's office payplan (4.48.010, 4.48.020, 4.48.030, 4.48.040, 4.48.050, 4.48.070)

64308 Recorder of Deed's office payplan (4.34)

64309 License Collector's office payplan (4.28)

64310 Collector of Revenue's office payplan (4.44)

64311 Secondhand dealers (8.82.050)

64312 Supplemental budget appropriation (Special)

64313 Soulard Special Business District amendment (Special)

64314 Soulard Special Business District—proposed tax levy increase (Special)

64315 Redevelopment of blighted area—210 North Tucker (Special)

64316 Redevelopment of blighted area—4439 and 4915-25 West Pine Boulevard (Special)

64317 Redevelopment of blighted area—4501-07 Manchester (Special)

64318 Redevelopment of blighted area—4167 and 4226 Connecticut Avenue (Special)

64319 Laclede's Landing development plan addendum (Special)

64320 Redevelopment of blighted area—4912R Neosho (Special)

64321 Redevelopment of blighted area—3005 Hawthorne (Special)

64322 Redevelopment of blighted area—4415 Morganford (Special)

64323 Redevelopment of blighted area—4324 and 4472 Delor (Special)

64324 Redevelopment of blighted area—Lafayette Square Scattered Sites (Special)

64325 Redevelopment of blighted area—4457 Pershing and 4537 Westminster (Special)

64326 Redevelopment of blighted area—4412 Pennsylvania (Special)

64327 Peddlers and hawkers in 3rd and 4th Wards (Repealed by 64569)

64328 Name change—Ruth C. Porter Mall to Porter Park (Special)

64329 Easement with AmerenUE for water division property (Special)

64330 Street vacation—Lucas Avenue from Jefferson to 23rd Street (Special)

64331 Redevelopment of blighted area—2747-49 and 2752 Armand (Special)

64332 Redevelopment of blighted area—2337-41 South Seventh (Special)

64333 Redevelopment of blighted area—2357 South 10th Street (Special)

64334 Redevelopment of blighted area—2415-17 McNair (Special)

64335 Redevelopment of blighted area—4201-03 Castleman and 4125 Shaw (Special)

64336 Redevelopment of blighted area—4438 Arco (Special)

64337 Redevelopment of blighted area—3902-06 Lindell and 229-33 North Vandeventer (Special)

64338 Redevelopment of blighted area—4257, 4658 and 4709 Virginia and 3234-41 Itaska (Special)

64339 Redevelopment of blighted area—2849 Wyoming (Special)

64340 Redevelopment of blighted area—4236 Papin (Special)

64341 Redevelopment of blighted area—3947-59 Page (Special)

64342 Redevelopment of blighted area—4953 Fountain (Special)

64343 Redevelopment of blighted area—4568 Evans (Special)

64344 Redevelopment of blighted area—Number 8 Lewis Place (Special)

64345 Redevelopment of blighted area—4342 Washington (Special)

64346 Parking for excise division employees (17.75)

64347 Redevelopment of blighted area—4939-41 and 4983 Lindenwood (Special)

64348 Redevelopment of blighted area—Oregon/McNair/Allen/Victor (Special)

64349 Street vacation—east/west alley in city block 3967 (Special)

64350 Parking revenue bonds (Special)

64351 Appropriation—Forest Park improvement (Special)

64352 Liquor licenses for Fourth Ward (Special)

64353 Sheriff's Office compensation (4.36.010, 4.36.020, 4.36.030, 4.36.040, 4.36.050, 4.36.060, 4.36.065, 4.36.066)

64354 Airport—Ferguson land acquisition (Special)

64355 Airport—Kinloch land acquisition (Special)

64356 Airport—Washington Park cemetery fund (Special)

64357 Grant—lead-based paint hazard control (Special)

64358 Airport—noise management system easement (Special)

64359 Street closing—permanently Whittier/Maryland and McPherson (Special)

64360 Stop sign—two-way Page and Clarendon (Special)

64361 Street closing—permanently Sullivan at Vandeventer (Special)

64362 Stop sign—two-way Sarah at McPherson (Special)

64363 Rezone—city blocks 1163, 1164, 1165, 1166, 1174, 1175, 1179, 1187, 1188, 1238 and 2408 to B (Special)

64364 Grant—Soulard Market (Special)

64365 Rezone—city block 5349 and 5350 to A (Special)

64366 Rezone—city block 4752W to F (Special)

64367 Rezone—city block 3913B to F (Special)

64368 Rezone—city block 3545 to F (Special)

64369 Redevelopment of blighted area—Utah/McDonald (Special)

64370 Street vacation—Koeln and Upton (Special)

64371 Street vacation—north/south alley and east/west alley in CB 4821A (Special)

64372 Street vacation—north/south alley in CB 633 (Special)

64373 1998-99 budget (Special)

64374 50/50 sidewalk program (Special)

64375 Street vacation—Alaskan Court between Koeln and Schirmer (Special)

64376 Borrowing of funds for deposits in general revenue (Special)

64377 Airport—second supplemental appropriation to master plan (Special)

64378 Treasurer's office compensation; repeals Ord. 63816 (4.26)

64379 Parking division compensation; repeals Ord. 63817 (4.30)

64380 Classified service compensation; repeals Ord. 63705 (4.10)

64381 Street vacation—east/west alley in city block 3971 (Special)

64382 Street vacation—city block 3886 (Special)

64383 Street vacation—Farrar from Broadway west; Bremen from Broadway to Ninth; Broadway from Bremen south abutting city blocks 1931 and 1217; east/west alley in city block 1931 (Special)

64384 Payment from local use tax to Missouri Department of Revenue (Special)

64385 Airport—contract with Director Graphics, LLC (Special)

64386 Airport—grant agreement for project 3-29-0085-15 (Special)

64387 Redevelopment of blighted area—3720 Utah (Special)

64388 Redevelopment of blighted area—3868 and 3875 Federer Place (Special)

64389 Redevelopment of blighted area—1317 to 1319 Withnell (Special)

64390 Redevelopment of blighted area—3939 to 3941 Michigan (Special)

64391 Redevelopment of blighted area—Chippewa Scattered Sites (Special)

64392 Redevelopment of blighted area—West End urban renewal area (Special)

64393 Fairgrounds redevelopment corporation's land in city block 2394 (Special)

64394 Redevelopment of blighted area—Mullanphy Place II (Special)

64395 Redevelopment of blighted area—3229 Shenandoah (Special)

64396 Redevelopment of blighted area—6221 Northwood (Special)

64397 Redevelopment of blighted area—2911 Lemp (Special)

64398 Redevelopment of blighted area—4301 Natural Bridge (Special)

64399 Parking division assets for operating expenses for fiscal year (Special)

64400 Designates housing conservation district (Repealed by 67914)

64401 Registration of domestic partnerships (8.37)

64402 Redevelopment of blighted area—817 and 819 Allen (Special)

64403 Redevelopment of blighted area—4300 West Belle (Special)

64404 Redevelopment of blighted area—4513 to 4515 and 4529 to 4535 Newberry Terrace (Special)

64405 Redevelopment of blighted area—5303 to 5319 Ruskin (Special)

64406 Airport—policies for ground transportation operators (Special)

64407 Street vacation—Channing from Olive Boulevard southwardly (Special)

64408 Redevelopment of blighted area—1909 and 1919 Utah (Special)

64409 Redevelopment of blighted area—5901 Kennerly (Special)

64410 Redevelopment of blighted area—3958 Juniata (Special)

64411 Redevelopment of blighted area—3437 Connecticut and 3251 Minnesota (Special)

64412 Redevelopment of blighted area—3256 to 3258 S. Compton (Special)

64413 Redevelopment of blighted area—3817 Shaw (Special)

64414 Redevelopment of blighted area—Shaw Boulevard Scattered Sites (Special)

64415 Redevelopment of blighted area—Edna St. Scattered Sites (Special)

64416 Street vacation—Amanda at Hampton, City Block 1693 (Special)

64417 Property maintenance code; repeals Ord. 63695 (25.32)

64418 Prohibition of branding and body piercing and tattooing; repeals Ord. 51842 (15.124)

64419 Voter submission to incur debt of sixty million dollars (Special)

64420 Redevelopment of blighted area—2228 to 2230 and 2243 to 2245 Jules (Special)

64421 Redevelopment of blighted area—3306 S. 18th (Special)

64422 Redevelopment of blighted area—4229 to 4233 Maryland (Special)

64423 Redevelopment of blighted area—4121 to 4129 Dr. Martin Luther King Dr. (Special)

64424 Appropriation—nineteen million eight hundred two thousand four hundred twenty six dollars from transportation trust fund to bi-state (Special)

64425 Transportation sales tax (Special)

64426 Redevelopment of blighted area—5233 Raymond (Special)

64427 Redevelopment of blighted area—5202 Vernon (Special)

64428 Redevelopment of blighted area—6553, 6560 and 6613 Odell (Special)

64429 Redevelopment of blighted area—3432 Pestalozzi (Special)

64430 Redevelopment of blighted area—3322 Illinois (Special)

64431 Redevelopment of blighted area—7219 Michigan (Special)

64432 Redevelopment of blighted area—1210 Allen (Special)

64433 Redevelopment of blighted area—1913, 1925 and 2601 Belle Glade (Special)

64434 Exchange agreement with SFP Landscaping and St. Louis University (Special)

64435 Airport—multiyear public work improvement for thirty-five million dollars (Special)

64436 Cable television franchise extension (Special)

64437 Forest Park fund to receive funds from park revenue (Special)

64438 Liquor licenses Ninth Ward (Special)

64439 Liquor licenses Tenth Ward (Special)

64440 Real property—sale to Marquette St. Louis Association property in city block 99 (Special)

64441 Airport—indenture lease with Ninety-Fourth of St. Louis (Special)

64442 Street closing—temporary, Cote Brilliante at Sarah (Special)

64443 Warrants issued by municipal judges (3.08.095)

64444 Ward capital improvement (Special)

64445 Loan guarantee program (Special)

64446 Condemnation for jail (Special)

64447 Airport—construction for east terminal (Special)

64448 Airport—Washington Park payment (Special)

64449 Airport—agreement with Southwest Airlines (Special)

64450 Airport—construction of east terminal (Special)

64451 Easement to Southwestern Bell Telephone Company (Special)

64452 Street closing—temporary, Lucille at Goodfellow (Special)

64453 Stop sign—three-way Taylor and Children's Place (Special)

64454 Real estate sale to state to benefit YMCA property in city blocks 4736 and 4741 known as the city sanitarium (Special)

64455 Employment retirement system—cooperative agreements with certain other retirement plans (4.16.403)

64456 Housing conservation district—Clifton Heights Neighborhood in 24th Ward (Repealed by 67914)

64457 City depositories; repeals Ords. 28285, 48493, 57500 and 57332 (5.12)

64458 Redevelopment of blighted area—4411 S. Grand and 4140 Nebraska (Special)

64459 Prohibition of certain signs on public buildings (26.68.055)

64460 Appropriation—area site and convention hotel site development projects (Special)

64461 Parking—neighborhood stabilization officers (17.79)

64462 Forest Park—agreement with Missouri Development Finance Board and Forest Park Forever to accept contributions and issue tax credits (Special)

64463 Prohibition of tobacco signs (Not codified) Note: Ordinance 64463 was ruled unconstitutional in Missouri Retailers Association v. City of St. Louis, 4:98VC01514

64464 Rezone—G zone in city blocks 5868 and 5869 (Special)

64465 Grant—Soulard Market design plans (Special)

64466 Grant—Soulard Market marketing and promotional programs (Special)

64467 Redevelopment of blighted area—20 N. Vandeventer (Special)

64468 Redevelopment of blighted area—3826 Delmar (Special)

64469 Redevelopment of blighted area—5827 Harney and 5517 to 5523 Oriole (Special)

64470 Redevelopment of blighted area—Baden Neighborhood Scattered Sites (Special)

64471 Redevelopment of blighted area—5339 West Avenue (Special)

64472 Blighting—Penrose Scattered Sites (Special)

64473 Redevelopment of blighted area—affirming Ordinance 63707 for Shaw Scattered Sites (Special)

64474 Port—agreement with Gasconade Enterprises, LLC (Special)

64475 Real estate—release of reversionary interest for Housing Authority of St. Louis County (Special)

64476 Allows street performers in West End; repeals §§ 1 and 2 of Ord. 59454 (Not codified)

64477 Airport—third supplemental appropriation into Ferguson land acquisition (Special)

64478 Airport—grant for deicing (Special)

64479 Airport—development fund for public works (Special)

64480 Grant—1999 annual plan for the 1999 CDBG program year (Special)

64481 Opens Hickory at 18th; repeals Ord. 57384 (Special)

64482 Redevelopment of blighted area—5640-56 Gravois (Special)

64483 Redevelopment of blighted area—3817 Morganford (Special)

64484 Temporary street closure—Westminster at Vandeventer (Special)

64485 Redevelopment of blighted area—5845 Nottingham (Special)

64486 Street vacation—east/west alley in city block 2169 (Special)

64487 Street vacation—north/south alley in city block 3664 (Special)

64488 Street vacation—Bulwer north of Carrie (Special)

64489 Dedication—city block 1175 (Special)

64490 Redevelopment of blighted area—Gilmore Avenue (Special)

64491 Redevelopment of blighted area—North Newstead (Special)

64492 Redevelopment of blighted area—Marquette Building (Special)

64493 Redevelopment of blighted area—Lalite/Theodore area (Special)

64494 Redevelopment of blighted area—4935 Fountain (Special)

64495 Redevelopment of blighted area—2800-08 Salena (Special)

64496 Redevelopment of blighted area—3420-26 Virginia (Special)

64497 Redevelopment of blighted area—Ashland/Lexington/West Sacramento (Special)

64498 Rezone—to A parcels in city block 2119 (Special)

64499 Redevelopment of blighted area—346-60 North Boyle (Special)

64500 Grant—airport for noise mitigation (Special)

64501 Grant—airport noise mitigation-Berkeley School (Special)

64502 Grant—airport for reimbursement of W1-W runway expansion (Special)

64503 Airport—multiyear public work and improvement program (Special)

64504 Permanent street closing— Parkview/Euclid/Taylor (Special)

64505 Easement—Laclede Gas Company in city block 6451 (Special)

64506 Easement—Ameren UE in city block 3892 (Special)

64507 License agreement—port/terminal railroad for accent lighting (Special)

64508 Airport—revenue refinancing bonds (Special)

64509 Redevelopment of blighted area—5700 Oakland area (Special)

64510 Water—revenue refinancing bonds (Special)

64511 Redevelopment of blighted area—Argyle Apartments (Special)

64512 Grant—natural gas vehicle demonstration project (Special)

64513 Street name change—part of Channing and Delmar to Josephine Baker Boulevard (Special)

64514 Rezone—to J in city blocks 1900, 1901 and 2366 (Special)

64515 Port—mooring site for Admiral Riverboat (Special)

64516 Argyle/York garage redevelopment project (Special)

64517 Argyle/York redevelopment project (Special)

64518 Argyle/York garage redevelopment project, treasurer (Special)

64519 Temporary street closing—Darby/Damon (Special)

64520 Vacation—Scott from Euclid eastwardly (Special)

64521 Airport—contracts for car rentals (Special)

64522 Chouteau Compton redevelopment area (Special)

64523 Redevelopment of blighted area—3442 Indiana (Special)

64524 Redevelopment plan—Marquette building; repeals Ord. 59295 (Special)

64525 Redevelopment of blighted area—2601 Whittier (Special)

64526 Redevelopment of blighted area—4754-60 South Grand and 3553-77 Delor (Special)

64527 Redevelopment of blighted area—212 West Steins (Special)

64528 Redevelopment of blighted area—6747-49 Garner (Special)

64529 Redevelopment of blighted area—3826 Arsenal (Special)

64530 Redevelopment of blighted area—Cleveland/Castleman area (Special)

64531 Redevelopment of blighted area—3977-79 Hartford (Special)

64532 Port—mooring lease for Robert E. Lee; repeals Ords. 57316, 62028 and 62635 (Special)

64533 Stop sign—Holly Hills and Alabama (Special)

64534 Real estate—sale of 6216 Clemens to St. Louis Antique Lighting (Special)

64535 Redevelopment of blighted area—Grand Oak Hill Village (Special)

64536 Redevelopment of blighted area—Lindenwood Scattered Sites Area (Special)

64537 Real estate—sale to Harris Stowe State College in city block 2243 (Special)

64538 Electric signal—installation at Kingshighway and B.C. Hospital (Special)

64539 Parking revenue bonds—issuance of twelve million dollars (Special)

64540 Real estate—to MOROC in city blocks 1704, 1705, 1707E and 1718E (Special)

64541 Temporary street closing—Elvira Alley and Tucker (Special)

64542 Street closing—Oregon at Miami (Special)

64543 Housing conservation district—Hyde Park (Repealed by 67914)

64544 Housing conservation district—Fairground Neighborhood and Fairground Park (Repealed by 67914)

64545 Redevelopment of blighted area—2621-23 Lemp (Special)

64546 Cathedral Square special business district—extension to collect tax; repeals and replaces paragraph (c) of Section 2 of Ord. 63777 (Special)

64547 Cathedral Square special business district—continuance of tax (Special)

64548 CWE south business district—imposition of tax (Special)

64549 CWE south business district—new boundaries; repeals Ord. 63080 (Special)

64550 CWE southeast business district—time period for tax collection; repeals §§ 5 and paragraph (f) of § 2 of Ord. 63780 (Special)

64551 CWE southeast business district—proposal for ten-year tax levy (Special)

64552 Condemnation for criminal justice center parking garage (Special)

64553 Improvements at Chain of Rocks and Howard Bend water treatment plants (Special)

64554 Improvement for the municipal water works system (Special)

64555 Installation and improvements of supervisory control and data acquisition systems (Special)

64556 Vacation—east/west alley in city block 5903 (Special)

64557 Temporary street closure—San Francisco/Kingshighway (Special)

64558 Grant—local law enforcement block grant (Special)

64559 Vacation—north/south alley in city block 4068-E (Special)

64560 Rezone—to E in city blocks 3825 and 3826 (Special)

64561 Repeals and replaces § 2 of Ord. 58593, Superintendent of Soldier's Memorial (3.56)

64562 Repeals and replaces § 3 of Ord. 60588, City Emergency Management Agency (3.40.020)

64563 Street vacation—north/south alley in city block 2874 (Special)

64564 Parking commission—issuance of bonds (Special)

64565 Real estate—lease to W.A.T Dignity Corporation for property at Whittier and Kennerly (Special)

64566 Industrial noise regulations (15.51.010— 15.51.090)

64567 Stop sign—Cass at 16th Street (Special)

64568 Vacation—Michigan from Geyer to terminus in the city (Special)

64569 Vendor regulations; repeals Ords. 34889, 52030 § 29-104, 53070, 54719, 55785, 56640, 57583, 58086, 58514, 59090, 59454, 59533, 59923, 64166 § 2, 64327 and Ch. 8.48 (8.108A)

64570 Rezone—to H zone in city blocks 5673, 5674 and 3894 (Special)

64571 Redevelopment of blighted area—Dutchtown South (Special)

64572 Designates certain property as Marie Fowler Park (22.44.340)

64573 Redevelopment of blighted area—Hill Scattered Sites III Area (Special)

64574 Redevelopment of blighted area—5131 Shaw (Special)

64575 Cable—renovation of building, expansion of parking lot and acquisition of vehicle (Special)

64576 Real property—sale to Joan May property in city block 149 (Special)

64577 Redevelopment of blighted area—5319 Shreve (Special)

64578 Redevelopment of blighted area—5020 Thekla, 5066-72 Ruskin and 5018-20 West Florissant (Special)

64579 Redevelopment of blighted area—6912 and 6916 Bruno (Special)

64580 Redevelopment of blighted area—5343 Wilson (Special)

64581 Rezone—certain property in I zone (Special)

64582 Vacation—L-shaped alley in city block 2323 (Special)

64583 Vacation—east/west alley in city block 946 (Special)

64584 Stop sign—two-way stop at Chippewa at Ohio (Special)

64585 Real property—sale to Mueller Optical property in city block 511 (Special)

64586 Amends § 5.22.090, nontaxable income (5.22.090)

64587 Cooperative agreement with St. Louis Housing Authority amendment and amending Ordinance 57817 (Special)

64588 Supplemental appropriation for local use tax (Special)

64589 Redevelopment of blighted area—St. Louis Place Park (Special)

64590 Redevelopment of blighted area—5781 Thekla (Special)

64591 Redevelopment of blighted area—3208-22 Arsenal (Special)

64592 Redevelopment of blighted area—Gravois/South Grand/Meramec (Special)

64593 Redevelopment of blighted area—6304-06 Juniata (Special)

64594 Redevelopment of blighted area—Hamilton Heights (Special)

64595 Redevelopment project—Convention Hotel (Special)

64596 Airport—noise management system (Special)

64597 Airport—land acquisition for Berkeley Campus (Special)

64598 Airport—amendment of master plan expansion program (Special)

64599 Airport—amending master plan implementation program (Special)

64600 Liquor licenses—20th Ward (Special)

64601 Redevelopment of blighted area—Dr. Martin Luther King/Pendleton/Evans Area (Special)

64602 Redevelopment agreement—Chouteau/Compton Area (Special)

64603 Tax increment revenue notes—Chouteau/Compton Area (Special)

64604 Liquor licenses—27th Ward (Special)

64605 Vacation—Rutger from Carr Lane to Ranken and Theresa from Hickory to Rutger (Special)

64606 Redevelopment of blighted area—2600 Tennessee Avenue (Special)

64607 Redevelopment of blighted area—2564-66 Natural Bridge (Special)

64608 Redevelopment of blighted area—300 North Tucker (Special)

64609 Redevelopment—Edison Brothers Warehouse (Special)

64610 Redevelopment of blighted area—911-19 Switzer (Special)

64611 Redevelopment of blighted area—Riverview/Lillian/Wren/Bircher Area (Special)

64612 Redevelopment of blighted area—5800 Goodfellow/6219 West Florissant (Special)

64613 Redevelopment—St. Louis central riverfront improved wharf (Special)

64614 Redevelopment—St. Louis central riverfront mooring sites (Special)

64615 Redevelopment—St. Louis riverfront mooring sites (Special)

64616 Tax increment revenue notes—St. Louis riverfront mooring sites (Special)

64617 Redevelopment of blighted area—2232 Nebraska (Special)

64618 Redevelopment of blighted area—4460 Gibson (Special)

64619 Redevelopment of blighted area—4240-42 McPherson (Special)

64620 Vacation—alley in city block 674 (Special)

64621 Vacation—alley in city block 5234 (Special)

64622 Vacation—Euclid Avenue adjoining city blocks 3886 and 3890 (Special)

64623 Vacation—air rights above Euclid adjoining city blocks 3886 and 3890 (Special)

64624 Vacation—subsurface rights under Euclid adjoining city blocks 3886 and 3890 (Special)

64625 Liquor licenses—1st Ward (Special)

64626 Vacation—Chambers St. from Ninth to alley (Special)

64627 Vacation—Laclede from Compton to Garrison (Special)

64628 Vacation—east/west alley in city block 2095 (Special)

64629 Permanent street closing—Lotus near Kingshighway; repeals Ord. 64173 (Special)

64630 Permanent street closing—Palm at Kingshighway; repeals Ord. 64176 (Special)

64631 Tax increment revenue notes for Edison Brothers Warehouse (Special)

64632 Liquor licenses—27th Ward (Special)

64633 Redevelopment of blighted area—3706 North Kingshighway and 4985 Natural Bridge (Special)

64634 Redevelopment of blighted area—4101-31 and 4135-51 Evans Avenue (Special)

64635 Redevelopment of blighted area—826 East Prairie (Special)

64636 Redevelopment of blighted area—400 South Fourteenth (Special)

64637 Redevelopment of blighted area—Southtown Area (Special)

64638 Washington University Medical Center redevelopment amendment (Special)

64639 Redevelopment of blighted area—2108 Lafayette Avenue (Special)

64640 Vacation—Berthold Avenue in city block 3996 (Special)

64641 Public safety general obligation bonds (Special)

64642 Maryland Plaza redevelopment plan amendment (Special)

64643 Liquor licenses—nonuse for one year (14.03.052)

64644 Redevelopment of blighted area—Shaw Scattered Sites (Special)

64645 Temporary street closing—Lalite and Mimika (Special)

64646 Vacation—22nd Street from M.L. King to Carr and Cole from 20th to 23rd Street (Special)

64647 1999-2000 budget (Special)

64648 Airport—public work and improvement program (Special)

64649 Airport—supplemental appropriation (Special)

64650 Airport—public work and improvements (Special)

64651 Airport—capital improvement project (Special)

64652 City justice center—bonds (Special)

64653 Borrowing of funds (Special)

64654 Repeals and replaces § 26.84.040, board of adjustment—increase in appeal fee (26.84.040)

64655 Repeals and replaces § 121.5 of Ord. 63307 [63703], board of building appeals fee (Ch. 25.01)

64656 Real property—sale of 4610 Varrelmann (Repealed by 65025)

64657 1999 St. Louis works and 50/50 sidewalk program (Special)

64658 Temporary street closure—Winnebago at Marine (Special)

64659 Health and hospitals—contract with state for cancer control (Special)

64660 Health and hospitals—contract with state for AIDS program (Special)

64661 Health and hospitals—contract with state for influenza/pneumococcal (Special)

64662 Mayor—contract with state for FY 1998 Title V juvenile justice and delinquency and youth violence prevention (Special)

64663 Real property—dedication West Cabanne Court and Catalpa Street in city blocks 4122, 4539, 4911 and 4912 (Special)

64664 Parks—designates city block 5036 as Father Maurice Nutt Park (22.44.340)

64665 Parks—designates city block 1060 as Leon Strauss Park (22.44.350)

64666 Vacation—east/west alley in city block 274 (Special)

64667 Laser beam—prohibition (11.78.010—11.78.040)

64668 Unpaid parking tickets—booting (17.63.010—17.63.030)

64669 Grant—airport for design and construct new parallel runway (Special)

64670 Grant—airport for functional replacement of Berkeley High School (Special)

64671 Supplemental appropriation for current expenses (Special)

64672 Parking commission—appropriation for operating expenses of treasurer's office (Special)

64673 Redevelopment of blighted area—4501 and 4511 Minnesota (Special)

64674 Redevelopment of blighted area—6632 and 6701 Michigan (Special)

64675 Redevelopment of blighted area—4103 Wyoming (Special)

64676 Redevelopment of blighted area—Arsenal, Morganford and Fyler area (Special)

64677 Repeals and replaces § 11 of Ord. 62887, certificate of inspection—increase in fees (25.56.070)

64678 Registration fees for vacant buildings (Ch. 25.01)

64679 Notice of condemned buildings (25.01.030)

64680 Repeals and replaces § 121.1 of § 3 of Ord. 63703, board of building appeals—increase in alternates (Ch. 25.01)

64681 Board of building appeals—appointment of hearing officers (Ch. 25.01)

64682 Redevelopment of blighted area—3905 Kingsland Court (Special)

64683 Redevelopment of blighted area—4531-4537 Page (Special)

64684 Redevelopment of blighted area—4225 South Kingshighway (Special)

64685 Real estate—sale of city block 5036 (Father Maurice Nutt Park) to St. Louis University (Special)

64686 Contract/lease—ConnectCare (Special)

64687 Establishes planning and urban design agency; repeals and replaces § 4.16.250; repeals Ord. 56708 (3.48.010—3.48.190, 4.16.250)

64688 Establishes community development administration (3.47.010—3.47.090)

64689 Establishes preservation board; repeals Ords. 57986 (except §§ 24.16.010—24.16.090 and 24.16.110), 59368 and 60390 (Ord. 61366 and §§ 24.16.010—24.16.090, 24.16.110 are repealed effective 1/1/2000) (Title 24)

64690 Lead poisoning provisions; repeals Ord. 57791 (11.22.030, 11.22.120, 11.22.140, 11.22.150, 11.22.170, 11.22.190)

64691 Redevelopment agreement—Dowtown Convention Hotel (Special)

64692 Real estate—property in city block 5975 to Pageant Building (Special)

64693 Public nuisance provisions; repeals Ords. 62765 and 63836 (15.42.010—15.42.140)

64694 Amends Ord. 63843, Trigen-Saint Louis Energy Corp. (Special)

64695 Street closure—Highland at North Kingshighway (Special)

64696 Transportation sales tax—funds to Bi-state (Special)

64697 Transportation trust fund—funds to Bi-state (Special)

64698 Grant—1999 juvenile accountability incentive block grant (Special)

64699 Building permit fees—increase by two dollars (Special)

64700 Vacation—alley in city block 3994 (Special)

64701 Lead abatement account (Special)

64702 Street name change—Murphy Park Drive (Special)

64703 Street vacation—Quincy Street at city block 3014 (Special)

64704 Stop sign—two-way stop at St. Louis Avenue and Taylor (Special)

64705 Trailer parking provisions; amends § 1 of Ord. 57831 (17.02.265, 17.24.080)

64706 Temporary street closure—north/south alley in city block 4951 (Special)

64707 Contract—resurfacing of streets (Special)

64708 Stop sign—two-way stop at Morganford and Oleatha (Special)

64709 Alley vacation—north/south alley in city block 206 (Special)

64710 Adds § 17.52.080; repeals paragraph (e) of § 4 of Ord. 32926, prohibition of counterfeiting official tags (17.52.080)

64711 Prohibition of counterfeiting proof of responsibility (17.53.065)

64712 Repeals and replaces §§ 2, 5, 10, 13, 14, 18, 30, 31 and 34 of Ord. 64569, regulation of vendors (8.108A.010, 8.108A.040, 8.108A.090, 8.108A.120, 8.108A.130, 8.108A.170, 8.108A.290, 8.108A.300, 8.108A.330)

64713 Contracts for demolition of abandoned buildings (Special)

64714 Purchase of equipment for fire department (Special)

64715 Purchase of equipment for police department (Special)

64716 Rezone—to A single-family in city blocks 4858 and 4816 (Special)

64717 Rezone—to A single-family in city blocks 3758 and 4582 (Special)

64718 Real property—sale of Illinois Terminal Rail Line (Special)

64719 Airport—concession agreement with Transportation Media, Inc. (Special)

64720 Rezone—to A single-family in city blocks 2896, 2907 and 2910 (Special)

64721 Amends § 2 of Ord. 59363, water line repairs—increase in surcharge (23.04.075)

64722 Utility agreement with state for facilities near Union and I-70 (Special)

64723 Real property—sale to MOROC property in city blocks 1704, 1705 and 1707E (Special)

64724 Community improvement district—Downtown St. Louis Partnership, LTD. (Special)

64725 Easement to MSD in city block 206S (Special)

64726 Gross receipts for restaurants and itinerant restaurants (11.42.267)

64727 Per ward expenditures from ward capital improvement account (Special)

64728 Redevelopment of blighted area—Washington/Vanddventer/Enright/Pendleton area (Special)

64729 Redevelopment of blighted area—4441 Pennsylvania (Special)

64730 Redevelopment of blighted area—4915 and 4925 Fountain (Special)

64731 Redevelopment of blighted area—4346 Washington (Special)

64732 Redevelopment of blighted area—112 Sidney (Special)

64733 Redevelopment of blighted area—2220 Stephen Avenue (Special)

64734 Redevelopment of blighted area—4210-4212 and 4252 Linton (Special)

64735 St. Louis business district—revising legal description of area (Special)

64736 Downtown parks business district—reducing the rate (Special)

64737 Alley vacation—north/south alley in city block 1219 (Special)

64738 Redevelopment of blighted area—Bett's Walk area (Special)

64739 Redevelopment of blighted area—5077 Washington Place (Special)

64740 Redevelopment of blighted area—1417 Herbert Street (Special)

64741 Redevelopment of blighted area—5734 DeGiverville Avenue (Special)

64742 Redevelopment of blighted area—Grand Oak Village III (Special)

64743 Redevelopment of blighted area—Hamilton St. Louis Avenue area (Special)

64744 Redevelopment of blighted area—3618 and 3638-3642 Cook and 3660-3666 Finney (Special)

64745 Redevelopment of blighted area—3626-3628 Hartford Street (Special)

64746 Redevelopment of blighted area—3010 Wisconsin (Special)

64747 Redevelopment of blighted area—1408 Herbert (Special)

64748 Excise—one-year moratorium of liquor in 10th Ward (Special)

64749 Air pollution regulations; repeals Ords. 50163, 55100, 55923, 58040, 59270, 60023 and 60629 (Repealed by Ord. 65645)

64750 Taxing district revenue (Special)

64751 Walkway vacation—walkway known as Waterman Way to Pershing in city block 5508 (Special)

64752 Stop sign—Biddle and 18th (Special)

64753 Redevelopment of blighted area—4525 Nebraska and 4526 Pennsylvania (Special)

64754 Redevelopment of blighted area—3540 Itaska and 4610 Alaska (Special)

64755 Redevelopment of blighted area—Gravois/Chippewa/Grace area (Special)

64756 Redevelopment of blighted area—4227 Prairie (Special)

64757 Redevelopment of blighted area—3654 Shaw Boulevard (Special)

64758 Redevelopment of blighted area—3414-3416 Salena (Special)

64759 Airport—agreement with Mercantile Bank for banking concession (Special)

64760 Airport—grant agreement for replacement of Berkeley High School Complex (Special)

64761 Establishes Westminster Place residential parking district (Special)

64762 Streets—removal of barricades on Mullanphy at Helen (Special)

64763 Public safety—agreement for medical response system (Special)

64764 Appropriation for gateway mall parking development agreement (Special)

64765 Contract authorization for bike path (Special)

64766 Footpath vacation—in city block 1652 (Special)

64767 2000 annual plan to U.S. Department of Housing and Urban Development (Special)

64768 Dedication—West Outer Road in city block 2896 (Special)

64769 Stop sign—two-way at Newstead and Evans (Special)

64770 Extension of cable television franchise (Special)

64771 Building code; repeals Ords. 52132, 63703, 63908, 64178, 64655, 64678, 64680 and 64681 (25.01.010—25.01.840)

64772 Fire prevention code; repeals Ord. 63805 (25.06.010—25.06.180)

64773 Amends §§ 8.29.020, 8.29.060 and 8.29.160, cable television franchise (8.29.020, 8.29.060, 8.29.160)

64774 Appropriation (Special)

64775 Airport—grant agreement amendment (Special)

64776 Airport—grant agreement amendment (Special)

64777 Airport—appropriation for Washington Park Cemetery (Special)

64778 Airport—appropriation for master plan implementation (Special)

64779 Temporary street closing—Bartmer at Clara (Special)

64780 Vacation—Edwards from Shaw to alley (Special)

64781 Temporary street closing—Baily at Grand (Special)

64782 Vacation—Second Street at Bremen (Special)

64783 Vacation—east/west alley in city block 539 (Special)

64784 Easement acquisition of alley owned by Security Building LLC (Special)

64785 Vacation—north/south alley in city block 5265 (Special)

64786 Bonds—for single family residences in city (Special)

64787 Easement—to KJD Incorporated (Special)

64788 Grant—1997 lead-based paint (Special)

64789 Grant—syphilis elimination program (Special)

64790 Grant—ClearCorps/AmeriCorps Project (Special)

64791 Grant—Neighborhood Expansion Work System for TANF Recipients Today Program (Special)

64792 Appropriation (Special)

64793 Blighting—5535 S. Grand (Special)

64794 Blighting—408 Olive and 400 Washington (Special)

64795 Blighting—affirmation of Bates/Thirty Eighth/Walsh Area (Special)

64796 Blighting—affirmation of Kosciusko Area (Special)

64797 Blighting—Natural Bridge/N. Grand Blvd. (Special)

64798 Blighting—1933 Edwards (Special)

64799 Blighting—2216-18 Wyoming (Special)

64800 Blighting—300-26 Walsh and 5101-21 Minnesota (Special)

64801 Airport—representation of airport commission (18.08.030)

64802 Stop site—two way Spring at Hickory (Special)

64803 Port authority—Admiral lease (Special)

64804 Removal of dead trees (22.48.185)

64805 Airport—reimbursement of cost for land acquired in fee for runway 6/24 RPZ (Special)

64806 Retirement system (Repealed by 64833)

64807 Legal description change in city block 1059 (Special)

64808 Vacation—Taft from Ray to railroad right-of-way (Special)

64809 Vacation—north/south walkway in city blocks 5774 and 6290 (Special)

64810 Airport—barrel revenue bonds (Special)

64811 City Justice Center bonds (Special)

64812 Blighting—925 Bates area (Special)

64813 Blighting—2922 S. Compton (Special)

64814 Blighting—3963 Shenandoah and 4051 Shaw (Special)

64815 Blighting—5022-24 W. Florissant (Special)

64816 Blighting—5000-08 Thekla and 5093-99 Kingshighway (Special)

64817 Blighting—2402 and 2406 S. 10th St. area (Special)

64818 Blighting—2438 McNair (Special)

64819 Blighting—4504-06 Pennsylvania (Special)

64820 Blighting—4182 Walsh and 5019 Ulena St (Special)

64821 Blighting—3717 and 3861 Utah Place (Special)

64822 Blighting—2215 Cherokee St. (Special)

64823 Blighting—3016 Wisconsin (Special)

64824 Blighting—2709 S. 11th St. (Special)

64825 Blighting—6409-11 Arthur, 6562-66, 6564 and 6566 McCune and 6641 Fyler (Special)

64826 Blighting—5868-78 W. Florissant and 5572-80 Riverview (Special)

64827 Blighting—St. Louis Ave. and N. Spring Ave. area (Special)

64828 Blighting—5181 Maple (Special)

64829 Blighting—4218-64 Laclede (Special)

64830 Blighting—1941 Congress Street (Special)

64831 Blighting—Near Southside Redevelopment Area (Special)

64832 Preservation review districts (Special)

64833 Employee retirement system; repeals Ords. 49933, 53738, 55041, 56132, 56719, 57354, 57368, 57971, 58419, 58670, 58694, 59046, 59279, 59441, 59486, 59708, 58487, 59709, 59714, 59823, 60877, 61249, 61976, 62719, 62792, 63157, 63347, 64076 and 64048 (4.16)

64834 Blighting—1311-13 Monroe St. (Special)

64835 Blighting—2401 N. Jefferson (Special)

64836 Check-cashing establishments; amends Ord. 62588, zoning (26.08.101)

64837 Short Term Loan Establishments and Financial Institution; amends Ord. 62588, zoning (26.08.162, 26.08.584)

64838 2000 St. Louis Works and 50/50 sidewalk programs (Special)

64839 Tax increment blighting analysis for Center of Emerging Technology redevelopment area (Special)

64840 Tobacco products; repeals § 2 of Ord. 62423 (11.32.110)

64841 Blighting—4059-4117 Forest Park Ave (Special)

64842 Housing conservation district—Mark Twain/I-70 Industrial and Wells/Goodfellow (Repealed by 67914)

64843 Vacation—Carroll St. (Special)

64844 Vacation—Garrison from Magazine to alley (Special)

64845 Airport—construction (Special)

64846 Airport—construction (Special)

64847 Airport—automated teller machines (Special)

64848 Blighting—20th St./Washington (Special)

64849 Redevelopment Plan—4391-99 West Pine (Special)

64850 Establishes the 4391-99 West Pine Special Allocation Fund (Special)

64851 Execution of Redevelopment Plan 4391-99 West Pine (Special)

64852 Authorizing the issuance of tax increment revenue note for 4391-99 West Pine (Special)

64853 Zoning-change to "E" multiple family dwelling land in city block 3916 (Special)

64854 Zoning-change to "F" neighborhood commercial in city block 1808 (Special)

64855 Blighting—3508-12 Missouri and 3726-28 Ohio (Special)

64856 Blighting—4608 McPherson (Special)

64857 Blighting—2100-04 Withnell (Special)

64858 Blighting—2002 Victor (Special)

64859 Blighting—4105 California (Special)

64860 Blighting—3125 Miami and 3501 California (Special)

64861 Blighting—2251 S. Jefferson (Special)

64862 Blighting—4247 Botanical (Special)

64863 Blighting—2101-25 Hadley, 1115-1227 Chambers and 1100-98 Madison (Special)

64864 Hepatitis A virus immunization (11.42.203)

64865 Sale of real property—Housing solutions property in city block 4393A and 5466 and known as 5424 N. Euclid and 5431 N. Euclid (Special)

64866 Sale of real property—Portfolio Gallery and Educational Center City property in city block 3753 known as 3934 Enright (Special)

64867 Sale of real property Cardinal Ritter College Prep property in city block known as 3870 Delmar (Not codified)

64868 Conversion of town houses; repeals and replaces §§ 26.08.105, 26.20.020, 26.20.090, 26.24.020 and 26.24.080 (26.08.105, 26.20.020, 26.20.090, 26.24.020, 26.24.080)

64869 Tax increment financing—Cupples Station (Special)

64870 Stop sign—two way Magnolia at Klemm (Special)

64871 Stop sign—two way Arsenal at Michigan (Special)

64872 Funeral procession regulations; repeals and replaces § 8.27.020 of Ord. 57831 (17.16.020)

64873 Street closing—permanent—East Adelaide between West Florissand and Grant (Special)

64874 Vacation—east/west alley in city block 1960 (Special)

64875 Airport—8th amended lease with Midcoast Aviation (Special)

64876 Airport—improvement program appropriation (Special)

64877 Appropriation—Letter of Intent Double Barrel Revenue Bonds, Series 2000 (Special)

64878 Pawnbroker regulations; repeals and replaces § 5 of Ord. 10355 (8.72.090)

64879 Vacation—Second Street from Branch to dock Streets (Special)

64880 Designation of property as "Joseph R. Leisure Park" (Special)

64881 Amends Ords. 57831 and 58681, parking (17.24.080, 17.30.020)

64882 Approves staff report (Special)

64883 Blighting—Ruskin Ave. Scattered sites (Special)

64884 Planned unit development for Near Southside redevelopment area (Special)

64885 Rescinds Board of Public Service Permit #51912 for St. Louis Housing Authority Low-Rent Housing Project in city blocks 410 and 475 (Special)

64886 Rezone—to "E" in city blocks 410 and 475 (Special)

64887 Blighting—920 Olive Street (Special)

64888 Blighting—Olive/Ewing/Laclede Area (Special)

64889 Blighting—Palm Street Scattered Sites (Special)

64890 Blighting—1625 Olive Street (Special)

64891 Blighting—6247 Rosebury (Special)

64892 Health Department grant—Health Alert Network (Special)

64893 Blighting—6496 Dale, 6323 West Park and 7016 Horner (Special)

64894 Blighting—King Estates (Special)

64895 Blighting—2622 Indiana (Special)

64896 Blighting—2336-38 Louisiana (Special)

64897 Blighting—2610 Tennessee (Special)

64898 Blighting—1432-36 Sullivan (Special)

64899 Blighting—4521 Nebraska (Special)

64900 Blighting—Page Blvd. Scattered Area (Special)

64901 Blighting—2326 S. 11th Street (Special)

64902 Easement to Southwestern Bell at Stacey Park (Special)

64903 Easement to Southwestern Bell at Creve Coeur Mill Road (Special)

64904 Construction of seismic improvements to Stacy Park (Special)

64905 Amends Ord. 64833, employee retirement system (4.16.145)

64906 Excise—one year moratorium in 20th and 21st Wards (Repealed by 65157)

64907 Section 108 Loan Guarantee Program (Special)

64908 Vacation—St. Charles between 9th and 10th (Special)

64909 Vacation—9th between St. Charles and Washington (Special)

64910 Leases to Federal National Mortgage Association (Special)

64911 Cable television franchise (Special)

64912 Reappropriation of certain funds (Special)

64913 Lease for Homer G. Hospital (Special)

64914 Hartford Street Residential Parking District (17.91)

64915 Vacation—Lafayette west of Tucker (Special)

64916 Vacation—west alley in city block 2249 (Special)

64917 Vacation—Garrison, Howard, Madison, alley in city block 1849, alley in city block 1850 (Special)

64918 Vacation—Cole from 19th to 20th (Special)

64919 Stop sign—Kingshighway and Cabanne (Special)

64920 Stop sign—Union at Cabanne (Special)

64921 Electric signal construction—Kingshighway and Vernon and Lindell and Whittier (Special)

64922	Blighting—3706 N. Kingshighway and 4985 Natural Bridge (Special)
64923	Repeals and replaces § 7, Ord. 63591, firemen's retirement systems (4.18.386)
64924	Stop sign—removal at River Des Peres and Parkway Lane and establishing a two way stop at River Des Peres and Loughborough Ave. (Special)
64925	Amends Ord. 64689, preservation and planning boards (3.48.060, 3.48.070, 24.04.010, 24.20.110, 24.20.120, 24.28.010, 24.40.050, 24.40.060)
64926	Zoning—"K" Unrestricted for parcels in city blocks 2235, 2248, 2249 and 2253 (Special)
64927	Zoning—"B" Two-Family Dwelling District in city block 2698 (Special)
64928	St. Louis convention Headquarters Hotel financing (Special)
64929	St. Louis Convention Headquarters Hotel redevelopment agreement (Special)
64930	St. Louis Convention Headquarters Hotel lease purchase and bonds (Special)
64931	St. Louis Convention Headquarter Hotel redevelopment plan and TIF (Special)
64932	Acquisition and lease of city blocks 276 and 190 to St. Louis Municipal Finance Corporation (Special)
64933	City budget (Special)
64934	Borrowing of funds (Special)
64935	Central West End North Special Business District—increase in tax (Special)
64936	Central West End North Special Business District—submitting proposal for tax increase (Special)
64937	Airport—concession with GEM Transportation (Special)
64938	Airport—operating agreement for public parking with APCOA-SRP (Special)
64939	Airport—employee shuttle contract with Huntleigh Transportation (Special)
64940	Airport—use agreement with Chautauqua Airline d/b/a Trans World Express (Special)
64941	Circuit attorney's office pay plan (4.48.010—4.48.050, 4.48.070)
64942	Repeals and replaces § 2 of Ord. 64833, employees' retirement system—deferred retirement option plan (4.16.010—4.16.115, 4.16.570—4.16.600)
64943	Repeals and replaces § 4.34.010, recorder of deeds office pay plan (4.34.010—4.34.090)
64944	Sheriff's office pay plan; repeals Ord. 64353 (4.36.010—4.36.068, 4.36.080—4.36.110)
64945	Collector of revenue office pay plan; repeals Ord. 64310 (Repealed by Ord. 65520)
64946	License collectors office pay plan (4.28.010—4.28.100)
64947	Parking division employee pay plan; repeals Ord. 64379 (4.30.010—4.30.024)
64948	Grant—health department for abstinence-only education (Special)
64949	Grant—FY 1999 local law enforcement (Special)
64950	Treasurer's office pay plan; repeals Ord. 64378 (4.26.015—4.26.023, 4.26.040—4.26.060)
64951	Voter submission on Section 8 of Article VIII of Charter (Charter Art. VIII § 8)
64952	Adds § 17.02.081; repeals and replaces § 17.16.040, sidewalks and bicycle/pedestrian rights-of-way (17.02.081, 17.16.040)
64953	Medical examiner's office pay plan; repeals Ord. 64306 (4.54.010—4.54.220)
64954	Compensation plan for classified service employees; repeals Ords. 59487, 64380 and paragraph 11 of Section 2 and paragraph 1 of Section 4 of Ord. 64833 (4.10.010—4.10.270, 4.16.070, 4.16.170)

64955 Temporary street closure—Ashland Place at Labadie (Special)

64956 Stop sign—two-way at Dr. Martin Luther King and Annie Malone (Special)

64957 Parking commission—appropriation for Kiel Parking and Marquette Building (Special)

64958 Repeals Ord. 25536 as codified in §§ 17.52.010 and 17.52.030 (Repealer)

64959 Redevelopment of blighted area—Kosciusko/Marion Street (Special)

64960 Redevelopment of blighted area—Shaw Scattered Sites VI (Special)

64961 Redevelopment of blighted area—2335 Park Avenue (Special)

64962 Redevelopment of blighted area—2301 Locust Avenue (Special)

64963 Redevelopment of blighted area—6151 McPherson (Special)

64964 Redevelopment of blighted area—3610 Iowa (Special)

64965 Redevelopment of blighted areas—6535 Fyler, 6050 Arthur, 6933 Lindenwood, 6608 McCune and 6938 Hancock (Special)

64966 Redevelopment of blighted area—1923 South 9th Street (Special)

64967 Redevelopment of blighted area—JVL Renaissance I Area (Special)

64968 Redevelopment of blighted area—3717 and 3725 Cote Brilliante (Special)

64969 Redevelopment of blighted area—2624 Prairie (Special)

64970 Redevelopment of blighted area—1247 Baden and 8116 Church Road (Special)

64971 Redevelopment of blighted area—4334 through 4336 Maryland (Special)

64972 Affirmation of blighted area—2860 Kingshighway and 4956-60 St. Louis (Special)

64973 Redevelopment of blighted area—North Kingshighway/North Euclid Scattered Sites (Special)

64974 Redevelopment of blighted area—Forest Park Scattered Sites (Special)

64975 Hepatitis A virus immunization; repeals Ord. 64864 (11.42.203)

64976 Grant—department of health MMR/TD adult immunization (Special)

64977 Vacation—Henrietta Street (Special)

64978 Vacation—north/south alley city block 129 (Special)

64979 Vacation—Castleman from Lawrence eastwardly (Special)

64980 Real property—sale to board of education property in city blocks 1854 and 1856 (Special)

64981 Real property—Forest Park lease to St. Louis Center subdistrict of Met Zoo and Park Museum (Special)

64982 Sheriff's office pay plan; repeals Ord. 64864 (4.36.010—4.36.068, 4.36.080—4.36.110)

64983 Amends Ord. 64944, excise—prohibition drink licenses in First Ward (14.03.220)

64984 Stop sign—two-way at Shreve and Rosalie (Special)

64985 Stop sign—two-way at Dr. Martin Luther King at 20th Street (Special)

64986 Temporary street closure—Chamberlin at Belt (Special)

64987 Temporary street closure—Kennerly at Clara (Special)

64988 Stop sign—St. Louis at 22nd Street (Special)

64989 Excise—prohibition of package or drink licenses in Tenth Ward; repeals Ord. 64748 (Special)

64990 Stop sign—Switzer at Drury Lane; Frederick at Baden; Hornsby at Partridge (Special)

64991 Stop sign—three-way at Mitchell at Louisville (Special)

64992 Cable television franchise—extension of proposal deadline (Special)

64993 Ward capital improvements account (Special)

64994 Voter proposal—Metropolitan Park and Recreation District (Special)

64995 Appropriation from transportation trust fund to bi-state (Special)

64996 Creates city public transit sales tax fund through transportation sales tax (Special)

64997 Redevelopment of blighted area—3456 through 3458 South Jefferson (Special)

64998 Redevelopment of blighted area—4163 Russell (Special)

64999 Redevelopment of blighted area—4701 South Kingshighway and 4900 Nottingham (Special)

65000 Redevelopment of blighted area—Utah/McDonald Scattered Sites (Special)

65001 Redevelopment of blighted area—2926 through 2928 South Compton (Special)

65002 Redevelopment of blighted area—2025 through 2029 Withnell (Special)

65003 Redevelopment of blighted area—Grand Rock (Special)

65004 Rezone (Special)

65005 Redevelopment of blighted areas—1415-25, 1529 and 1901-13 Bremen; 1419-1435 North Park Place; 1411, 1414, 1417-1419 and 1425 Farrar Street and 3724 and 3824 Blair (Special)

65006 Redevelopment of blighted area—7137 Mardel (Special)

65007 Redevelopment of blighted area—5805 through 5807 Thekla (Special)

65008 Redevelopment of blighted area—3821, 3827, 3863, 3867 Ashland and 3833 Greer (Special)

65009 Redevelopment of blighted area—2408 through 2410 R. Menard (Special)

65010 Airport—1st amendment to FAA grant agreement No. 38 (Special)

65011 Operation of bicycles by police (17.16.450)

65012 Airport—fifth supplemental appropriation from airport passenger facility charge fund into master plan implementation contract Ordinance 63873 (Special)

65013 Airport—first supplemental appropriation from airport passenger facility charge fund into pilot noise mitigation program Ordinance 63873 (Special)

65014 Airport—massage therapy concession agreement with "A BackRub Company" (Special)

65015 Airport—business service center concession with "Laptop Lane Limited" (Special)

65016 Rezone (Special)

65017 Rezone (Special)

65018 Rezone (Special)

65019 Excise—prohibition for package and drink licenses in the 9th ward for one year (Special)

65020 Electrical Code; repeals Ord. 63620 (25.02.010—25.02.050)

65021 Mechanical Code; repeals Ord. 63806 (25.03.010—25.03.730)

65022 Amends International Fuel Gas Code 2000 (25.07.010—25.07.560)

65023 Property Maintenance Code; repeals Ord. 64417 (25.32.010—25.32.370)

65024 Airport—transfer from passenger facility charge fund to Kinloch land acquisition fund (Special)

65025 Real property—sale of 4610 Varrelmann (Special)

65026 Real property—sale of 14845 Olive (Special)

65027 Real property—sale of 7501-7503 Alabama (Special)

65028 Temporary street closure—Maffitt at North Kingshighway (Special)

65029 Cable television deadline extended (Special)

65030 Voter proposition—use tax for public health care services (Special)

65031 Repeals and replaces Section P-23.3 of § 3 of Ord. 60826, Plumbing Code—membership of board of examiners (25.04.040)

65032 Redevelopment of blighted area—4352 through 4358 Maryland (Special)

65033 Redevelopment of blighted area—6759 Chippewa (Special)

65034 Vacation—Lafayette triangle, west of Tucker (Special)

65035 Redevelopment plan—Vandeventer Spring Redevelopment (Special)

65036 Redevelopment of blighted area—Hamilton Heights Scattered Sites (Special)

65037 Vacation—alley in city block 3711-A (Special)

65038 Amends § 3 of Ord. 56141, recorder of deeds—deeds of trust signatures (15.152.030)

65039 Hedge for interest rates of Convention Headquarters Hotel (Special)

65040 Vacation—increase in processing fee to two hundred dollars; repeals Ord. 58525 (20.14.090)

65041 Permit fees—permits to use public streets and sidewalks; repeals Ord. 61767 (20.46.010, 20.46.030)

65042 Hedge for interest rates for Darst-Webb Hope VI Revitalization Plan (Special)

65043 Vacation—air space over Market Street between Beaumont and Ewing (Special)

65044 Lease agreement with Forest Park for golf courses (Special)

65045 Living wage for contractors (Repealed by Ord. 65597)

65046 Cable television—extends time for response to RFP to October 30, 2000 (Special)

65047 Redevelopment of blighted area—6437 and 6580 Scanlon and 6608-6610 Marmaduke Avenue (Special)

65048 Redevelopment of blighted area—3437 Crittenden (Special)

65049 Real property—sale to J. Mess Plumbing 4252 and 4256 Oletha (Special)

65050 Airport—grant with letter of intent ACE 98-01 (Special)

65051 Redevelopment of blighted area—1017 Childress (Special)

65052 Redevelopment of blighted area—2185 Hampton (Special)

65053 Redevelopment of blighted area—21453 Hickory (Special)

65054 Redevelopment of blighted area—2614 through 2616 Prairie, 3721 through 3731 and 3726 through 3740 Lincoln and 2604 through 2614 North Spring (Special)

65055 Redevelopment of blighted area—6050 Kingsbury (Special)

65056 Redevelopment of blighted area—3814 through 3816 California (Special)

65057 Circuit attorney—contract for funding for drug prosecution (Special)

65058 Redevelopment of blighted area—4342 through 4352 Page (Special)

65059 Redevelopment of blighted area—710 Allen (Special)

65060 Redevelopment of blighted area—1844 through 1846 South 10th Street (Special)

65061 Regulation of vendors; repeals Ords. 64569 and 64712 (8.108A.010—8.108A.370)

65062 Temporary street closure—east/west alley in city block 5363 (Special)

65063 Vacation—Holly Hills at Michigan (Special)

65064 Stop sign—two-way on Marcus at Leduc (Special)

65065 Board of trustees of the employees retirement system—compensation for consultants (4.16.547)

65066 Vacation—east/west alley in city block 3942 (Special)

65067 Vacation—north/south in city block 3874-W (Special)

65068 Stop sign—two-way on Clayton at Berthold (Special)

65069 Excise-prohibiting new package licenses for three years in Twenty-fourth Ward (Special)

65070 Amends Ord. 64455, employees' retirement system (4.16.403)

65071 Blighting—716 Geyer (Special)

65072 Blighting—211—212 East Harris, 2007—2011 East Fair and 2031, 2037—2039 and 2140—2142 Adelaide (Special)

65073 Blighting—6001 West Florissant (Special)

65074 Blighting—6002—6004 Garesche and 5642 Pamplin (Special)

65075 Blighting—Olive 7th/Pine (Special)

65076 Blighting—4065—4069 Shaw and 1816—1818 Thurman (Special)

65077 Blighting—4640 Shenandoah (Special)

65078 Blighting—3864—3868 Shenandoah (Special)

65079 Blighting—3674—3826 Shaw (Special)

65080 Blighting—2708—2710 Lemp (Special)

65081 Blighting—5607—5635 Riverview, 5900—5916 West Florissant, 5911 Shulte and 5616—5628 Vivian (Special)

65082 Blighting—3501 Missouri (Special)

65083 Blighting—Palm Street scattered sites (Special)

65084 Amends Ord. 62751, funds for domestic violence shelters (3.08.385)

65085 Appropriation—shelters for domestic violence (Special)

65086 2001 federal community development block grant (Special)

65087 Airport revenue bonds (Special)

65088 Cable television proposal extension (Special)

65089 Blighting—5541 South Grand (Special)

65090 Blighting—Cass/North 17th/Madison/I-70/ North 9th area (Special)

65091 Blighting—2734 Sheridan (Special)

65092 Water department—assignment of easement to Howard Bend Levee District (Special)

65093 Cable television proposal extension (Special)

65094 Earnings tax—stock option exemption (5.22.090)

65095 Real property—sale of property in 600 Block of Dickson to Michael W. and Carol J. Berra (Special)

65096 Real property—sale of 1804 Benton Street to LRA (Special)

65097 Amends Ord. 65035 (Special)

65098 Real property—termination of warranty deed covenant and restrictions by BJC to 4455 Duncan (Special)

65099 Approval for contracts for various construction projects (Special)

65100 Blighting—1050—1054 Oakview (Special)

65101 Stop sign—two-way at Partridge and Hornsby (Special)

65102 Vacation—alleys in city block 5045 (Special)

65103 Street closure—temporary Judith Court at Gasconade (Special)

65104 Street excavation program revenue (5.78.010)

65105 Marriage license fee for domestic violence (5.66.010—5.66.030)

65106 Civil case filing surcharge for domestic violence (5.53.010—5.53.030)

65107 Grant—health department for REACH program (Special)

65108 Air pollution—restrictions of emissions of visible air contaminants (Repealed by Ord. 65645)

65109 Professional service contracts for contingency contracts (3.97.020)

65110 Vacation—Third Street from Miller to Rutger (Special)

65111 Blighting—333 Washington (Special)

65112 Vacation—Scott from Jefferson (Special)

65113 Vacation—University adjoining city block 5413 (Special)

65114 TIF for Center for Emerging Technologies Redevelopment Area (Special)

65115 Authorization of bonds for Center for Emerging Technologies Redevelopment area (Special)

65116 Blighting—2838—2840 McNair (Special)

65117 Redevelopment plan—Chouteau/Compton (Special)

65118 Authorization of bonds for Chouteau/Compton redevelopment area (Special)

65119 Blighting—Papin/Kentucky/Talmage Avenue area (Special)

65120 Blighting—Tower Grove East scattered sites (Special)

65121 Voter proposition—use tax for housing and health care (Special)

65122 Parks—lease of Lucas Park (Special)

65123 Blighting—3015—3017 Magnolia (Special)

65124 Blighting—5500 West Florissant/5555 Davison area (Special)

65125 Blighting—5277 Robin/5748 Thekla (Special)

65126 Blighting—2701 Russell, 2812 and 2816 Accomac (Special)

65127 Blighting—2110 South 9th (Special)

65128 Blighting—4371 Maryland (Special)

65129 School stop sign—Delor at Newport (Special)

65130 Vacation—alleys in city blocks 2314 and 2319 (Special)

65131 Vacation—alleys in city block 3433 (Special)

65132 Use tax for affordable housing, establishment of affordable housing commission (3.59.010—3.59.040)

65133 Locust Street business district amendment to boundaries (Special)

65134 Locust Street business district tax imposition (Special)

65135 Blighting—Terry Avenue scattered sites (Special)

65136 Blighting—5201-5203 Palm and 5101-5109 Lexington (Special)

65137 Vacation—east/west alley in city blocks 3963 N&S (Special)

65138 Motorized scooter regulations (17.37.010— 17.37.080)

65139 Airport—release of interest in land to bi-state development agency (Special)

65140 Airport—amendatory agreements (Special)

65141 Street-name change of Millbrook (Special)

65142 Parking for disabled (17.76.020, 17.76.080—17.76.100, 17.77.010)

65143 Transfer of funds into equitable relief from utility tax fund for payment of gas bills (Special)

65144 Funding for gas bills for low income families (Special)

65145 Grant for multi-jurisdictional task force (Special)

65146 Airport—building capital improvement project (Special)

65147 Airport—grant agreement ratification for federal obligation for noise mitigation at airport (Special)

65148 Airport—grant agreement ratification for federal obligation for replacement of Berkeley High School (Not codified)

65149 Airport—second amendment to master plan expansion (Special)

65150 Airport—airport revenue bonds, series 2001 (Special)

65151 Excise—prohibition of package or drink in 22nd Ward (Special)

65152 Zoning—community unit plan for Washington University Campus (Special)

65153 Parks—lease for South St. Louis Square Park (Special)

65154 Streets—temporary closing of East Gano at Blair (Special)

65155 Parks—lease of Adams Park (Special)

65156 FY 2000 local law enforcement (Special)

65157 Excise—prohibition of package or drink license in 20th and 21st Wards; repeals Ord. 64906 (Special)

65158 Grant—department of human services for multi-dimensional assistance for homeless families (Special)

65159 Excise—prohibition of package and drink licenses in 8th Ward (Special)

65160 Grant—monitoring prevalence of STD and TB infection (Special)

65161 Second supplemental appropriation (Special)

65162 Airport—public work and improvement program (Special)

65163 Airport—public work and improvement (Special)

65164 Blighting—Hyde Park scattered sites III area (Special)

65165 Blighting—Patton Avenue area (Special)

65166 Blighting—3915, 3919 and 3929 Page Blvd. redevelopment area (Special)

65167 Blighting—4743 Washington Blvd. area (Special)

65168 Blighting—Penrose/Greater Ville/ O'Fallon area (Special)

65169 Blighting—919 South Skinker Blvd. area (Special)

65170 Blighting—4266 and 4272 Flad Avenue area (Special)

65171 Blighting—1536 Mississippi Avenue area (Special)

65172 Blighting—3140 Lafayette Avenue area (Special)

65173 Blighting—4708 South Broadway Street area (Special)

65174 Blighting—Manchester/McCausland/ Forest area (Special)

65175 Blighting—Manchester/Ecoff/McCausland area (Special)

65176 Blighting—5401—5439 Southwest Avenue, 6645 Mitchell Avenue and 6709 Garner Avenue area (Special)

65177 Blighting—Gravois/Morganford area (Special)

65178 Blighting—4324 and 4472 Delor Street (Special)

65179 Blighting—5944 Pershing Avenue area (Special)

65180 Blighting—6186 McPherson Avenue area (Special)

65181 Blighting—4244 St. Louis Avenue area (Special)

65182 Blighting—Vaughn Apartment Annex I area (Special)

65183 Blighting—1403—1407 East Grand Blvd. and 1400 East Obear Avenue area (Special)

65184 Release of easement—book 8498, page 415 (Special)

65185 Release of easement—book 8498, page 411 (Special)

65186 Cable television—extension of expiration date (Special)

65187 Zoning—"B" two-family dwelling district in city blocks 2653, 2682, 2699, 2698, 2652, 2651, 2684, 2697 and 2727 (Special)

65188 Zoning—"A" single-family dwelling in city block 3913.01 and 3913.02 and "B" two-family in city block 3910.05 (Special)

65189 Zoning—"F" neighborhood commercial district in city block 4082 (Special)

65190 Zoning—"F" neighborhood commercial district in city block 4170.03 and "G" local commercial and office districts in city block 4170.03 (Special)

65191 Zoning—"F" neighborhood commercial district in city block 5415 (Special)

65192 Airport—supplemental appropriation for airport contingency fund (Special)

65193 Airport—second supplemental appropriation for airport passenger facility charge fund (Special)

65194 Certificate of value to contain street address of place of residence of grantees (5.70.020)

65195 Blighting—Chouteau/Donovan Place (Special)

65196 Use agreement with Metricom for Richochet (Special)

65197 Redevelopment plan for Tucker/Olive/ Pine area (Special)

65198 Budget (Special)

65199 Street closing—temporary closing Gano at 20th (Special)

65200 Airport—Agreement between Airport and APCOA-SRP Parking V. (Special)

65201 Street closing—temporary east/west alley in city block 2114 (Special)

65202 Vacation—north/south alley in city block 504 (Special)

65203 Borrowing of funds (Special)

65204 Repeals and replaces § 25.01.030, building code §§ 112.2.13, 112.2.14, 112.3.1, 113.5, 113.5.1 (25.01)

65205 Vacation—east/west alley in city block 2314—repeals Ord. 65130 (Special)

65206 Repeals and replaces Ch. 10.04, regulation of dogs and cats (10.04)

65207 Blighting—affirming Ord. 62870 declaring Southtown area as blighted (Special)

65208 Blighting—affirming redevelopment of Southtown area as approved by Ord. 64637 (Special)

65209 Streets—temporary closing north/south alley in city block 1564 (Special)

65210 Cable television (Special)

65211 Adds Ch. 17.95, Maryland Avenue residential parking (17.95)

65212 Streets—temporary closing of Ferry at Randall Place (Special)

65213 Parking Commission—making appropriation and debt service expenses (Special)

65214 Airport—First Amendment to Washington Park Cemetery—amends Ord. 63825 (Special)

65215 Airport—shoeshine concession (Special)

65216 Airport—telecommunications and public pay telephone service concession agreement amendment (Special)

65217 Airport—Pilot noise mitigation (Special)

65218 50/50 Sidewalk Program (Special)

65219 South St. Louis Square Park lease (Special)

65220 Excise—package and drink licenses prohibited in 25 Ward (Special)

65221 Stop site—two-way stop at 20th and Can Street (Special)

65222 Streets—reopening of Arco at Manchester (Special)

65223 Streets—temporary closing of Clarence at Sacramento (Special)

65224 Excise—package and drink license prohibited in 1st Ward (Special)

65225 Redevelopment Plan—7114 Lindenwood (Special)

65226 Blighting—Olive/7th/Pine area (Special)

65227 Blighting—3506-3238-40 Bailey (Special)

65228 Blighting—3821-3852 and 3867 Ashland and 3834 Sullivan and 3833 Greer (Special)

65229 Blighting—3206 and 3741 Palm Street (Special)

65230 Blighting—2006 Salisbury (Special)

65231 Redevelopment Plan—130l-09 Newstead (Special)

65232 Redevelopment Plan—6619-21 Alabama (Special)

65233 Designation of honorary street names process (Special)

65234 Redevelopment Plan—6329-35 Alaska (Special)

65235 Excise—prohibition of package or drink licenses in 2nd Ward (Special)

65236 Excise—prohibition of package or drink licenses in 20th, 21st and 3rd Wards (Special)

65237 Amends § 8.29.290, cable television franchise renewal (Repealed by 65431)

65238 Airport—multi-year public work and improvement program (Special)

65239 Airport—grant agreement for noise mitigation (Special)

65240 Airport—land acquisition for noise mitigation (Special)

65241 Airport—rehabilitate runway 12L/30R (Special)

65242 Airport—rehabilitate airfield lighting/electrical vault (Special)

65243 Airport—sale between city and McDonnell Douglas (Special)

65244 Airport—lease with Boeing Company (Special)

65245	Airport—lease with McDonnell Douglas (Special)
65246	Streets—Deed of vacation to Sigma Chemical (Special)
65247	Bi-State Transportation Fund Trust Fund appropriation (Special)
65248	City Public Transit Sales Trust Fund (Special)
65249	Blighting—N. Grand/Kossuth/Bailey (Special)
65250	Redevelopment plan—3539-41 Hartford (Special)
65251	Redevelopment plan—S. Grand/ Juniata/ Hartford/Arkansas (Special)
65252	Redevelopment plan—3655 Shenandoah and 4154 Russell (Special)
65253	Redevelopment plan—3446 Pestaslozzi (Special)
65254	Redevelopment plan—3500 Utah (Special)
65255	Redevelopment plan—Arsenal/Hartford /Wyoming/Indiana (Special)
65256	Redevelopment plan—6430 Wise (Special)
65257	Redevelopment plan— 1709- 1711 Lafayette (Special)
65258	Redevelopment plan—2044 Hanis (Special)
65259	Blighting—1960 E. Adelaide (Special)
65260	Redevelopment plan—2927 Hampton (Special)
65261	Redevelopment plan—2931 and 2933 Harper (Special)
65262	Redevelopment plan—1943-45 Lynch (Special)
65263	Redevelopment plan—2701 S. 10th (Special)
65264	Redevelopment plan— 3244 Minnesota (Special)
65265	Redevelopment plan affirmed (Ord. 65173) —4708 Broadway (Special)
65266	Redevelopment plan—4227-31 California (Special)
65267	Redevelopment plan—4529 Nebraska (Special)
65268	Redevelopment plan—2344, 2346, and 2350 Rutger (Special)
65269	Redevelopment plan—1112 Olive (Special)
65270	Redevelopment plan—2112-16 Victor (Special)
65271	Redevelopment plan—330 N. Newstead (Special)
65272	Redevelopment plan—4353 McPherson (Special)
65273	Vacation—alleys in city blocks 3750 and 3751 (Special)
65274	South Grand Community Improvement District (Special)
65275	Ward Capital Improvement Account (Special)
65276	Vacation—Indiana south of Miami (Special)
65277	Vacation—Benton from Glasgow to Elliott (Special)
65278	Grand Square Special Business District rate reduction (Special)
65279	TIF Redevelopment Area—3800 Park (Special)
65280	TIF Special Allocation Fund—3800 Park (Special)
65281	TIF Redevelopment Agreement—3800 Park (Special)
65282	Cable television (Special)
65283	Extension of cable television franchise (Special)
65284	Excise—Prohibition of package or drink licenses in 27th Ward (Special)
65285	Redevelopment plan—6220 Rosebury (Special)
65286	Grant agreement—Public safety for bulletproof vests (Special)
65287	Amends § 15.42.130, nuisances—special assessments and liens to recover costs (15.42)
65288	Real property sale of Dutchtown South 3539 Wisconsin (Special)
65289	Redevelopment plan—4543 East of 4555 Page and 4601-13 Newberry Terrace (Special)

65290 Redevelopment plan—5770 Waterman (Special)

65291 Ellenwood Subdivision Improvement District (Special)

65292 Redevelopment plan—Adams Park school and area (Special)

65293 Excise—prohibition of package or drink licenses in 1st and 20th wards (Special)

65294 Redevelopment plan—3639 College (Special)

65295 Redevelopment plan—366 N. Grand (Special)

65296 Redevelopment plan—2101-33 East Prairie and 3811 West Florissant (Special)

65297 Redevelopment plan—3827 Ashland (Special)

65298 Redevelopment plan—1448 Adelaide (Special)

65299 Adds § 17.72.030, reserve parking for police vehicles on Bingham Street (17.72)

65300 Vacation—Wright Street at North Broadway (Special)

65301 Vacation—east/west alley in city block 271 (Special)

65302 Vacation—18th Street at Madison (Special)

65303 Vacation—air rights above Walnut between 11th and Tucker (Special)

65304 Vacation—First Street at Biddle (Special)

65305 Amends § 17.16.300, blood alcohol content reduction (17.16)

65306 Adds Ch. 17.97, parking around Mel Carnahan Courthouse (17.97)

65307 Blighting—1911-23 East College (Special)

65308 St. Louis Municipal Finance Corporation down payment assistance (Special)

65309 Amends § 20.26.240, sidewalks—repair of damage caused by trees (20.26)

65310 Waterworks systems installation and repairs (Special)

65311 Airport—Grant agreement for project 3-29-0085-47 (Special)

65312 License agreement for Torch Relay Services for Olympics (Special)

65313 Easement—with AmerenUE in city block 480 (Special)

65314 Cable Television renewal response deadline (Special)

65315 2002 Block Grant (Special)

65316 Redevelopment Plan— 3129 Ohio (Special)

65317 Redevelopment Plan—2921 and 2925 Michigan (Special)

65318 Redevelopment Plan— 1918-24 Cherokee (Special)

65319 Redevelopment Plan—3457 Arsenal (Special)

65320 Redevelopment Plan—2911 S. Compton (Special)

65321 Redevelopment Plan—California/Iowa/Oregon/Halliday/Humphrey Area (Special)

65322 Redevelopment Plan—2648 Russell (Special)

65323 Redevelopment Plan—1110 Allen (Special)

65324 Landmark designation—Feasting Fox/Al Smith's Restaurant (Special)

65325 Redevelopment plan—400 S. 14th St. (Special)

65326 Redevelopment Plan—1100 Locust/1101 Olive (Special)

65327 Redevelopment Plan—1939 Arsenal (Special)

65328 Redevelopment Plan—2018 Cherokee (Special)

65329 Redevelopment Plan—2836 Missouri (Special)

65330 Redevelopment Plan—312 N. 8th (Special)

65331 Redevelopment Plan—2404, 2404 Rear and 2406 Menard (Special)

65332 Redevelopment Plan—1213 Allen Market Lane (Special)

65333 Redevelopment Plan—4203 Shenandoah (Special)

65334 Redevelopment Plan—900 Allen (Special)

65335 Real estate—sale to Jones Company Custom Homes Inc.—14845 Olive (Special)

65336 Grant—Department of Justice (Special)

65337 Grant—Local Law Enforcement Block Grant (Special)

65338 Vacation—east/west alley in city block 2320 (Special)

65339 Vacation—east/west alley in city block 2313 (Special)

65340 Vacation—Gratiot from 21st Street (Special)

65341 Vacation—Tennessee south of Schirmer to alley (Special)

65342 Vacation—Schirmer west of Tennessee (Special)

65343 Vacation—alley at Primm to I-55 (Special)

65344 Vacation—Grand Boulevard at Schirmer to alley in city block 3106 (Special)

65345 Vacation—north/south alley in city block 3106 (Special)

65346 Vacation—Oleatha at Morganford and railroad (Special)

65347 Street vending prohibition in 4th Ward (Special)

65348 Streets—two-way stop at Compton and Juniata (Special)

65349 Street closing—Missouri at Broadaway (Special)

65350 Vacation—east/west alley in city block 274 (Special)

65351 Adds § 17.40.040, construction zone moving violations (17.40)

65352 Vacation—north/south alley in city block 3404 (Special)

65353 Vacation—north/south alley and east/west alley in city block 2311 (Special)

65354 Amends § 18.08.0303, representation on city airport commission (18.08)

65355 Airport—grant for land acquisition (Special)

65356 Airport—grant for redevelopment of surplus airport (Special)

65357 Airport—grant for preparation or development of a terminal area plan (Special)

65358 Airport—grant for environmental analysis of midfield terminal and runway extension (Special)

65359 Airport—MII Projects Amendment (Special)

65360 Streets—loan for lights (Special)

65361 Redevelopment plan—Gravois Plaza Redevelopment Area (Special)

65362 Redevelopment plan—affirming adoption of Plan for Gravois Plaza (Special)

65363 Streets—closing of Lucille at Mimika (Special)

65364 Redevelopment plan—7801 South Broadway (Special)

65365 Redevelopment plan—4461 Enright (Special)

65366 Redevelopment plan—3939 Shenandoah Avenue (Special)

65367 Redevelopment plan—Tower Grove/ Swan Avenue (Special)

65368 Redevelopment plan—5955 and 5744-50 Pershing, 6031 Westminster and 6012 Washington (Special)

65369 Redevelopment plan—W. Florissant/ Moraine/ Carrie/Red Bud (Special)

65370 Redevelopment plan—4950 Columbia (Special)

65371 Redevelopment plan—2331-41 Menard (Special)

65372 Redevelopment plan—2519 S. 12th Street (Special)

65373 Redevelopment plan—N. 7th St./Convention Plaza/N. 6th St./Locust (Special)

65374 Redevelopment plan—4310-16 North Florissant (Special)

65375 Redevelopment plan—5145 Shaw/1822 Marconi (Special)

65376 Preservation Review Districts—added Review District Twenty-One (Special)

65377 Amends Ch. 2.12, establishes new ward boundaries (2. 12)

65378 Redevelopment area—4100 Forest Park Redevelopment Area (Special)

65379 Redevelopment area—tax increment revenue notes Forest Park Development (Special)

65380 Redevelopment plan—Lafayette Square Historic District (Special)

65381 Redevelopment plan—6977-85 Chippewa (Special)

65382 Streets—reopening Randall at Ferry (Special)

65383 Intergovernmental Cooperation Agreement—Ellenwood Subdivision Neighborhood Improvement District (Special)

65384 Airport—supplemental appropriation (Special)

65385 Grant agreement—Health Department STD Surveillance (Special)

65386 Grant agreement—Human Services MORE Services (Special)

65387 Real property—sale to Lite of Jericho 5419 and 5433 St. Louis Ave. (Special)

65388 Redevelopment plan—N. Florissant/N. Market/Hadley/ Warren (Special)

65389 Vacation—Hall Street from Angelica to Breman and north/south alley in city block 1224 (Special)

65390 Redevelopment plan—3325-27 Magnolia (Special)

65391 Redevelopment plan—1412 Hebert Street (Special)

65392 Vacation—Prescott, Morin, Campbell, north/south alley in city block 3495, and north/south alley in city block 3480 (Special)

65393 Redevelopment plan—3505 Shenandoah and 2327 Tennessee (Special)

65394 Vacation—Dekalb, north/south alley in city block 1779 (Special)

65395 Vacation—north/south alley in city block 1783 and north/south alley in city block 1788 (Special)

65396 Vacation—Dekalb, Zepp and north/south alley in city block 1789-E-W (Special)

65397 Vacation—Zepp and north/south alley in city block 1781 and north/south alley in city block 1790 (Special)

65398 Vacation—Elmbank, Greer, Darby (Special)

65399 Vacation—north/south alley in city block 5679 (Special)

65400 Vacation—Spring south of Washington (Special)

65401 Vacation—east/west alley in city block 3928 (Special)

65402 Cable television (Special)

65403 Treasurer—issuance of Parking Revenue Bonds (Special)

65404 Vacation—alleys in city block 3946 (Special)

65405 Vacation—east/west alley in city block 5782 (Special)

65406 Vacation—east/west alley in city block 3965 (Special)

65407 Parks—grant for Gamble Recreation Center (Special)

65408 Transfer of funds for 555 Washington (Special)

65409 Parks—Cooperation Agreement for hatcheries (Special)

65410 Airport—agreement with Huntleigh Transportation (Special)

65411 Airport—noise management appropriation (Special)

65412 Redevelopment plan—3824 Juniata Street (Special)

65413 Blighting—S. Broadway/Lemp/Osceola (Special)

65414 Blighting—3427 Pennsylvania Ave. (Special)

65415 Compensation for military duty (Special)

65416 Redevelopment plan—3701 Lindell, 3718 and 3730 Westminster (Special)

65417 Amends Art. XVIII, § 1, of City Charter, proposition to voters—changes definition of "excepted position" (Charter, Art. XVIII)

65418 Amends Art. XVIII, § 6, of City Charter, proposition to voters—salary of civil service commissioners (Charter, Art. XVIII)

65419 Redevelopment plan—3832 Blair and 1436 Bremen (Special)

65420 Repeals and replaces Ch. 26.74, floodplain area (26.74)

65421 Redevelopment plan—Manchester/Mitchell (Special)

65422 Redevelopment plan—Gravois Plaza (Special)

65423 TIF—Gravois Plaza (Special)

65424 Redevelopment plan—Tech Electronics Manchester/Dale (Special)

65425 Redevelopment agreement—Tech Electronics (Special)

65426 TIF—Tech Electronics (Special)

65427 Appropriation—Affordable Housing Commission (Special)

65428 Vacation—Ninth between St. Charles and Washington (Special)

65429 Vacation—alley in city blocks 3138—3107 and 3106 (Special)

65430 Repeals and replaces Ch. 8.29A, cable TV consumer practices and relations (8.29A)

65431 Repeals and replaces Ch. 8.29, granting of cable TV franchises (8.29)

65432 Settlement agreement with St. Louis Tele-Communications, Inc. (Special)

65433 Adds new Ch. 8.29B, cable TV franchise renewal to St. Louis Tele-Communications, Inc. (8.29B)

65434 Adds new Ch. 8.29C, broadband internet access (8.29C)

65435 Animal Protection Facility and Restoration Fund (Special)

65436 Amends Art. XVIII, § 3, of City Charter, proposition—Charter amendment for Article XVIII (Charter, Art. XVIII)

65437 Appropriation—$100,000.00 from Health Care Trust Fund (Special)

65438 Adds §§ 3.08.390—3.08.400, court cost increase of $5.00 for courthouse improvements (3.08)

65439 Real property lease to Luepkers in city block 1552 (Special)

65440 Appropriation—$150,000.00 from Healthcare Trust Fund for victims of domestic violence (Special)

65441 Blighting—Samuel McRee and Midtown Medical Center (Special)

65442 Adds Ch. 11.35, asbestos inspectors permit (Repealed by Ord. 65646)

65443 Redevelopment plan—MLK Plaza (Special)

65444 Redevelopment plan—MLK Plaza developers (Special)

65445 Redevelopment plan—Syndicate Trust/Century (Special)

65446 Carnahan Courthouse renovations bonds (Special)

65447 Ballpark funding (Special)

65448 Repeals and replaces § 11.24.250, air pollution fees (Repealed by Ord. 65645)

65449 Real property—quitclaim deed to LCRA for Bohemian Hill (Special)

65450 Real property—quitclaim deed to LCRA for 1720-22 S. 14th St. and 1726-30 S. 14th St. (Special)

65451 Real property—quitclaim deed to Soulard Housing Corp. for 2312 S. 18th St. (Special)

65452 Redevelopment plan—4539 and 4555 Wichita (Special)

65453 Redevelopment plan—2113 E. Adelaide (Special)

65454 Redevelopment plan—116-120 E. Poepping (Special)

65455 Redevelopment plan—4300-14, 4322-30, 4346-48, 4313-17, 4321-35, 4339, 4347-53 Prairie Ave. (Special)

65456 Redevelopment plan—5350-5428 Delmar Blvd. (Special)

65457 Redevelopment plan—4440-48 Olive St. (Special)

65458 Redevelopment plan—1925-33 Arsenal and 3022 Salena St. (Special)

65459 Redevelopment plan—6651 Dale Ave. (Special)

65460 Redevelopment plan—1900-04 Arsenal St. and 3101-05 Lemp Ave. (Special)

65461 Redevelopment plan—2720, 2733, 2822 and 2826 Wyoming St. and 2650 Arsenal St. and Wyoming Street and 2650 Arsenal St. and 3100 Ohio Ave. (Special)

65462 Redevelopment plan—3905 Utah St. and 3801 Wyoming St. (Special)

65463 Redevelopment plan—3318-24 Roger Place (Special)

65464 Redevelopment plan—2030 Victor Street (Special)

65465 Redevelopment plan—1915 S. 12th St. (Special)

65466 Redevelopment plan—1831 Sidney St. (Special)

65467 Redevelopment plan—Lexington/Carter/Fair (Special)

65468 Redevelopment plan—2711 Tennessee Ave. (Special)

65469 Redevelopment plan—2709-21 Locust St. and 2701 Washington Blvd. (Special)

65470 Redevelopment plan—3815 Wilmington Ave. (Special)

65471 Redevelopment plan—6421 Lloyd Ave. (Special)

65472 Redevelopment plan—514 and 601-617 Holly Hills (Special)

65473 Streets—closing Cadet at Kingshighway and Wichita (Special)

65474 Vacation—alley in city block 5592 (Special)

65475 Vacation—Parkview Place from Euclid (Special)

65476 Vacation—East College in city block 3399 (Special)

65477 Vacation—Tara Lane beginning at Goodfellow (Special)

65478 Vacation—street located in city block 3884, being a part of Buckingham Court (Special)

65479 Director of Public Safety—Agreements for the purpose of providing ride-along services as clinical experience (Special)

65480 Forest Park Improvements projects (Special)

65481 Amends § 25.01.030, Building Code Section 119.1 (notice of condemnation for manufacture or storage of methamphetamine) (25.01)

65482 Adds §§ 11.60.230—11.60.260, premises unlawfully used for controlled substances (11.60)

65483 Adds Ch. 15.135, projectile weapons (15.135)

65484 Grant for the FY 2001 "Drug Free Communities Support Program" (Special)

65485 Redevelopment plan for Salisbury St., N. Florissant Ave., Palm St., 23rd St. and 25th (Special)

65486 Tax Increment Revenue Notes (MLK Plaza Redevelopment Project) (Special)

65487 Redevelopment plan—1206 Allen Avenue (Special)

65488 Health Commissioner—Immunize the general public against certain diseases (Special)

65489 Loop East Community Improvement District (Special)

65490 Fire Department—mutual emergency and fire protection services in the State of Illinois (Special)

65491 Streets—closing on Dodier at the east curb line of Spring Ave. (Special)

65492 Agreement with St. Louis ConnectCare (Special)

65493 Street construction—N. Kingshighway and Bircher (Special)

65494 Speed regulation—Kingshighway between Lillian and West Florissant (Special)

65495 Redevelopment plan—1234-36 S. Vandeventer (Special)

65496	Redevelopment plan—4360 Olive (Special)
65497	Redevelopment plan—4924 Odell (Special)
65498	Redevelopment plan—Southside Improvement Corporation (Special)
65499	Housing Conservation District—portion of Hyde Park in 3rd Ward (Repealed by 67914)
65500	Budget (Special)
65501	Airport—Third Amendment of Master Plan Expansion (Special)
65502	Vacation—Kingsbury Square East (Special)
65503	Vacation—east/west alley in City Block 182, Olive, 7th, Pine, and 8th (Special)
65504	ConnectCare appropriation (Special)
65505	Lambert Airport—multi-year public work program (Special)
65506	Vacation—east/west alley in City Block 206S, Walnut, 11th Clark and Tucker (Special)
65507	Unimproved Public Wharf—lease to U.S. Army Corps of Engineers (Special)
65508	Establishment of Gardenside Subdivision Business District (Special)
65509	Submitting tax for Gardenside Special District (Special)
65510	Borrowing of funds for fiscal year (Special)
65511	Real property—sale to USA (Special)
65512	Health department grant—March of Dimes Access Prevention for Women at Risk (Special)
65513	Tax Increment Revenue for Cupples Station Redevelopment Project (Special)
65514	Health department grant—MINACT/ St. Louis Job Corp. (Special)
65515	Real property—sale by Treasurer to Forest Park Garage, L.L.C. (Special)
65516	Appropriation to Grand Center, Inc. (Special)
65517	Repeals and replaces § 4.34.010, recorder of deeds pay plan (4.34.010—4.34.090)
65518	Parking division pay plan (4.30.010—4.30.024)
65519	Treasurers office pay plan (4.26.015—4.26.023, 4.26.040—4.26.060)
65520	Collector of revenue's office pay plan; repeals Ord. 64945 (4.44.010—4.44.060)
65521	Classified service pay plan; repeals and replaces Ord. 64954 Sections 1, 2, 9, and 16 (4.10.010—4.10.160)
65522	License collector's office pay plan (4.28.010—4.28.100)
65523	Circuit attorney's office pay plan (4.48.010—4.48.050, 4.48.070)
65524	Medical examiner's office pay plan (4.10.010—4.10.270)
65525	Sheriff's office pay plan (4.36.010—4.36.068, 4.36.080—4.36.110)
65526	Redevelopment plan—1914-26 Salisbury and 1915-21 Mallinckrodt (Special)
65527	Redevelopment plan—4200 Laclede (Special)
65528	Redevelopment agreement—4200 Laclede (Special)
65529	Revenue notes—4200 Laclede (Special)
65530	Ellenwood Subdivision—special assessment (Special)
65531	Redevelopment plan—Mullanphy Place III (Special)
65532	Vacation—Rutger for north/south alley (Special)
65533	Redevelopment plan—3022 Cherokee Street (Special)
65534	Redevelopment plan—1000 Locust/315 N. 10th/1001-05 Olive (Special)
65535	Redevelopment plan—6427 Chippewa (Special)
65536	St. Louis Works/50/50 Sidewalk Program (Special)
65537	Health Care Trust Fund—appropriation (Special)

65538 Vacation—east/west alley in city block 1599 and Gravois, and Grace for Walgreens (Special)

65539 Redevelopment plan—4158 and 4414 West Pine (Special)

65540 Redevelopment plan—4531-65 Forest Park Ave. (Special)

65541 Repeals and replaces § 2, Ord. 64923, firefighter's retirement system (4.18.386)

65542 Designates—Janet B. Wood Park (22.44.375)

65543 Redevelopment plan—3701 Texas (Special)

65544 Agreement—Downtown St. Louis Partnership Community Improvement District for downtown court (Special)

65545 Redevelopment plan—3946 Papin (Special)

65546 Redevelopment plan—1929 Bremen, 3901-11 and 3914-24 N. 20th Street (Special)

65547 Redevelopment plan—1400 Burd (Special)

65548 Designates—William L. Clay, Sr. Sculpture Park (22.44.376)

65549 Designates—Loretta Lee Hall Park (22.44.377)

65550 Redevelopment plan—4141 West Pine (Special)

65551 Redevelopment plan—3641-43 and 3906 Shenandoah, 4222 Russell Blvd. (Special)

65552 Redevelopment plan—3743-45 California (Special)

65553 Redevelopment plan—1621-27 S. 9th Street (Special)

65554 Redevelopment plan—2304-06 Russell (Special)

65555 Redevelopment plan—3972 Hartford/ 3150 Roger Place (Special)

65556 Redevelopment plan—3618 McDonald (Special)

65557 Petition for Grand Center Community Improvement District (Special)

65558 Redevelopment plan—4901 Washington/615 N. Euclid (Special)

65559 Blighting—Patton Ave. Area, see ordinance 65156 (Special)

65560 Grant—Fire Chief for firefighting equipment (Special)

65561 Operation Impact—former employees (Special)

65562 Parking Commission—abolition of right to levy parking fee on certain streets new Barnes-Jewish Hospital (Special)

65563 Central West End Historic District—extension of boundaries (Special)

65564 BPS—supplemental agreements with MODOT (Special)

65565 Parking Commission—appropriation for payment of operating expense (Special)

65566 Vacation—sidewalk at Vandeventer/ Kentucky, Talmage and Manchester (Special)

65567 Adds Ch. 11.79, swimming pool regulations (11.79)

65568 Vacation—Laclede from Compton to Grand (Special)

65569 Vacation—City block 1038 as bounded by Delmar, Compton, Sam Shepard, and Leonard (Special)

65570 Vacation—City block 2091—Shenandoah, Ohio, Victor, and California (FOX Park) (Special)

65571 Vacation—City block 442—Papin, 13th, Chouteau and 14th (Special)

65572 Alley—opening in city block 5313-S, and condemnation (Special)

65573 BPS—construction of Lindell Blvd. Lighting (Special)

65574 Streets—closing of alley in City Block 1654 at curbline of Broadway (Special)

65575 Development plan—500-30, 538-64 DeBalivere and 5685-61 Kingsbury (Special)

65576 Voter proposition—vacancies in civil service, Charter Art. XVIII (Failed)

65577	Real property—sale to Gilded Age Renovation 2050R Lafayette (Special)
65578	Voter proposition—qualifications of Director of Health and Hospitals (Charter Art. XIII)
65579	Voter proposition—increase in fines, Charter Art. IV Section 24 (Failed)
65580	Redevelopment area—Old Post Office (Special)
65581	Redevelopment plan—1806-10 Crittenden (Special)
65582	Redevelopment plan—3144 and 3148-56 Shenandoah and 2302-06 S. Compton (Special)
65583	Redevelopment area—20th St. and Washington Ave. (Special)
65584	Redevelopment plan—2401 S. 12th St. (Special)
65585	Redevelopment plan—1009 Olive St. (Special)
65586	Redevelopment plan—1919 Ann Ave. (Special)
65587	Redevelopment plan—3265-67 Roger Place (Special)
65588	Redevelopment plan—4066 Botanical Ave. (Special)
65589	Redevelopment plan—1432 Francis Street (Special)
65590	Redevelopment plan—2025 Arsenal Street (Special)
65591	Vacation—city block 5415 (Special)
65592	Redevelopment plan—3153 Portis Ave. (Special)
65593	Appropriation—$108,333 (Special)
65594	Redevelopment plan—3960 Duncan Ave. (Special)
65595	Appropriation—from Transportation Trust Fund to Bi-State (Special)
65596	Vacation Gasconade from Broadway to Ohio (Special)
65597	Repeals and replaces Ord. 65045, living wage (3.99)
65598	Vacation—City Block west line of alley in City blocks 3049 and 3086; and Reilly (Special)
65599	Adds new Ch. 17.98, parking of medical examiners' vehicles (17.98)
65600	Redevelopment plan—Gravois/Loughborough/Quincy Redevelopment (Special)
65601	Vacate City Block 3966-N (Special)
65602	Vacate alley in City Block 4781 (Special)
65603	Vacate Cadet beginning at Kingshighway (Special)
65604	Transportation Sales Tax—deposit funds received pursuant to said sales tax into the City Public Transit Sales Tax Trust Fund (Special)
65605	Redevelopment area—1505 Mo. TIF Redevelopment plan (Special)
65606	Redevelopment Agreement with Gilded Age Renovation, LLC, known as the 1505 Mo. TIF Redevelopment Plan (Special)
65607	Tax Increment Revenue Notes (1505 Missouri TIF Redevelopment Project) (Special)
65608	Garrison/Brantner/Webster Park—a lease (Special)
65609	Repeals and replaces Ord. 65132, Section 1, city use tax (3.59.010)
65610	Agreement for solid waste disposal services (Special)
65611	Seventh Street as "Jack Buck Way" (Special)
65612	Ward Capital Improvements (Special)
65613	Appropriation of the quarter-cent sales tax levied for public mass transportation purposes (Special)
65614	Forest Park lease to Forest Park Forever, Inc. (Special)
65615	Airport grant agreement—Federal Aviation Administration of the Dept. of Transportation (Special)
65616	Airport—Lambert International Concession Agreement for the Ground Transportation Concession—GEM Transportation (Special)
65617	Airport—City Air Cargo Services, Temporary and Non-Exclusive Easement Agreement (Special)

65618 Airport Revenue Bonds (Special)

65619 Airport grant agreement for Project Number 3-29-0085-68-2002 (Special)

65620 Airport grant for Project Number 3-29-0085-70-2002 (Special)

65621 Airport grant for Project Number 3-29-0085-71-2002 (Special)

65622 Airport grant for Project Number 3-29-0085-72-2002 (Special)

65623 Airport Concession Agreement—Central Carts (Special)

65624 Airport Lease—Gate Gourmet, Inc. (Special)

65625 Airport Building Project Public Works (Special)

65626 Airport Airfield Projects Public Works (Special)

65627 Airport—Appropriation from the subaccount of the Series 2002 Airport Construction Account in the Construction fund (Special)

65628 Redevelopment plan—1849 Cass (Special)

65629 Redevelopment plan—2754 Meramec (Special)

65630 Redevelopment plan—3124 Lemp (Special)

65631 Redevelopment plan—3840 Humphrey (Special)

65632 Redevelopment plan—3750 Washington (Special)

65633 Redevelopment plan—1800-08 Kennett Place and 1801-03 Lafayette (Special)

65634 Redevelopment plan—5426-52 and 5461-71 Robin (Special)

65635 Redevelopment plan—3839 Fairview (Special)

65636 Redevelopment plan—3010 Salena (Special)

65637 Redevelopment plan—3534 Halliday (Special)

65638 Redevelopment plan—3668 Shaw (Special)

65639 Redevelopment plan—2707-11 S. 12th Street (Special)

65640 Conservation district—2nd Ward designation (Repealed by 67914)

65641 Redevelopment plan—6238-48 Sunshine Drive (Special)

65642 Blighting—1933 Edwards (Special)

65643 Redevelopment plan—2101 S. Jefferson (Special)

65644 Streets—honorarily name Clara Ave. as Congressman William L. Clay, Sr. Drive (Special)

65645 Repeals and replaces Ords. 64749, 65108, and 65448, air pollution regulations (11.34.010—11.34.290)

65646 Repeals and replaces Ord. 65442, asbestos inspectors (11.35)

65647 Grant—to fund Regional Public Health Emergency Planning and Preparedness (Special)

65648 Vacation—Wyoming from Broadway to Ninth (Special)

65649 Vacation—Seventh from Arsenal to Wyoming (Special)

65650 Vacation—Dorcas from Broadway to Busch (Special)

65651 Vacation—Second Street from Dorcas to Lynch (Special)

65652 Vacation—Ninth from Lynch southwardly (Special)

65653 Vacation—Busch from Arsenal to Lynch (Special)

65654 Vacation—City block 998, Stoddard, Leffingwell, Cole, Martin Luther King Dr. and Glasgow (Special)

65655 Grant—lead-based paint hazard control (Special)

65656 Revising legal description in Ordinance 65392 (Special)

65657 Revising legal description in Ordinance 65389 (Special)

65658 Vacation—Evans from Dr. Martin Luther King to Spring and alley in City Block 1862 (Special)

65659 Real estate—sale to Thayer Aerospace 1254R Vandeventer city block 5006 (Special)

65660 Grant—Records Management for Board of Election Commissioner (Special)

65661 Grant—Records Management for Register's Office (Special)

65662 Vacation—city block 6260 alleys (Special)

65663 Airport—grant for rehabilitation of runway/airfield lighting (Special)

65664 Airport—preferential use space for Continental Airlines (Special)

65665 Treasurer—lease with Park East L.L.C. city block 3884 (Special)

65666 Employees Retirement System—medical coverage (Special)

65667 Vacation—Ashland to Semplem (Special)

65668 Redevelopment plan—South Downtown (Special)

65669 Amends § 8.08.010, entertainment license tax (8.08.010)

65670 Vacation—Kimberly from Ashland to Greer (Special)

65671 Jack Buck statue—landmark (Special)

65672 Streets—temporarily closing on 23rd at Mallinckrodt (Special)

65673 Repeals and replaces § 3.59.030(F), affordable housing commission (3.59.030 F)

65674 Redevelopment plan—Destrehan St., Blair, Buchanan St. 14th Street (Special)

65675 Forest Park—Lease for ferris wheel (Repealed by 66253)

65676 Federal Block Grant funding (Special)

65677 Zoning—change to "K" parcels in blocks 6507 and 6508 and Cutlot 102 (Special)

65678 Blighting—3915, 3919, and 3929 Page—affirmed Ordinance 65166 (Special)

65679 Redevelopment plan—5301 Pennsylvania (Special)

65680 Redevelopment plan—3182 Alfred (Special)

65681 Redevelopment plan—3101 Cherokee (Special)

65682 Redevelopment plan—3314 California (Special)

65683 Redevelopment plan—6186 Kinsbury (Special)

65684 Redevelopment plan—5833 Pershing (Special)

65685 Redevelopment plan—4939 Reber and 4921 Columbia (Special)

65686 Redevelopment plan—3129 Lackland (Special)

65687 Redevelopment plan—2026 Sidney (Special)

65688 Redevelopment plan—1909 Lynch (Special)

65689 Redevelopment plan—2701 Wyoming, 2728 Texas and 3128 Ohio (Special)

65690 Redevelopment plan—6501 Nashville and 6759 Garner (Special)

65691 Redevelopment plan—2020 S. 11th and 1015 Allen (Special)

65692 Redevelopment plan—909-11 Victor (Special)

65693 Redevelopment plan—3849 McDonald (Special)

65694 Redevelopment plan—6145 Colorado (Special)

65695 Redevelopment plan—6501 Nashville and 6759 Garner (Special)

65696 Vacation—Newstead in city block 3613 (Special)

65697 Legal description change—north-south alley in city block 5313 (Special)

65698 Streets—names of streets in O'Fallon Park (Special)

65699 Streets—rename Ridgewood to Aboussie Place (Special)

65700 Amends § 15.50.030, noise—Laclede's Landing (15.50.030)

65701 Regulation of Hospital/Medical/Infectious Waste Incinerators (Special)

65702 Grant—Public Safety and Bureau of Justice Assistance for bulletproof vests (Special)

65703	Redevelopment plan—Grand Center (Special)
65704	Airport—multi-year public work program (Special)
65705	Various public work projects—traffic signal optimization, Riverview, Jefferson, Delor, Dr. Martin Luther King, Tower Grove (Special)
65706	Airport—grant (Special)
65707	Airport—grant (Special)
65708	Amends § 3.02.070, city contracts—certification of taxes (3.02.070)
65709	Adds Ch. 6.17, city contracts—certification of non-debarment (6.17)
65710	Adds Ch. 4.05, travel reports required for elected officials (4.05)
65711	Voter proposition—increase of purchases from $500.00 to $5,000.00 (Charter Art. XV § 29)
65712	Adds § 25.56.090(D)(1) and (2), certificate of inspections required for condemned property in housing conservation districts (25.56.090)
65713	Voter proposition—East Loop Parkview Gardens Special Business District (Special)
65714	Voter proposition—East Loop Parkview Gardens Special Business District (Special)
65715	Tax Increment Revenue Notes (114101151 South Seventh) (Special)
65716	Affordable Housing Commission—appropriation (Special)
65717	Redevelopment plan—Project Area Number 1 (Special)
65718	Redevelopment plan—Paul Brown/Arcade (Special)
65719	Redevelopment plan agreement—Paul Brown (Special)
65720	TIF Revenue Notes—Paul Brown (Special)
65721	Redevelopment plan—Delmar/Lake Redevelopment (Special)
65722	Redevelopment plan—4052 and 4171-75 Castleman, 3911 and 4130 Shenandoah, 4203 Russell (Special)
65723	Redevelopment plan—JVL Renaissance (Special)
65724	Redevelopment plan—1141-1151 South Seventh (Special)
65725	Real estate—sale of 1526 Mallinckrodt to Otis D. and Deborah C. Woodard (Special)
65726	Real estate—sale of 5277 Robin to Riverview—West Florissant Housing Development Corp. (Special)
65727	Ellenwood Subdivision Neighborhood Improvement District—plans and specifications (Special)
65728	Redevelopment plan—3900-4736 and 4101-4739 Natural Bridge (Special)
65729	Redevelopment plan—4406 Arsenal (Special)
65730	East Loop Parkview Gardens Business District—changing boundaries (Special)
65731	Tax increment financing—Walter Knoll Florist Redevelopment (Special)
65732	Voter submission—bond issue for airport (Special)
65733	Real estate—exchange of Columbia Bottoms with Conservation Commission (Special)
65734	DROP Program—interest rate (Special)
65735	Scottish Rite Cathedral Preservation property (Special)
65736	Redevelopment plan—Walter Knoll Florist TIF (Special)
65737	Redevelopment plan—Walter Knoll Florist (Special)
65738	Redevelopment plan—7001-17 Pennsylvania and 210 Quincy (Special)
65739	Blighting—408 Olive and 400 Washington (Special)
65740	Redevelopment plan—North Broadway St., Angelica St., N. 9th and Salisbury (Special)
65741	Redevelopment plan—Chippewa St./Clifton Ave/Bancroft/Hampton (Special)
65742	Redevelopment plan—3713-25 N. 20th Street (Special)

65743	Fourth Ward Housing Conservation District (Repealed by 67914)
65744	Tax Increment Revenue Notes—$2,444,400 (Special)
65745	Redevelopment plan—Louderman, LLC. (Special)
65746	Redevelopment plan—Louderman Building (Special)
65747	Tax Increment Notes—920 Olive/1000 Locust (Special)
65748	Redevelopment plan—920 Olive/1000 Locust (Special)
65749	Redevelopment plan (Special)
65750	Redevelopment plan—2654 Pestalozzi (Special)
65751	Redevelopment plan—1033 and 1037 Baden, 1049 R Bittner and 8548 Trafford Lane (Special)
65752	Redevelopment plan—5038 Miami (Special)
65753	Redevelopment plan—5422 Reber (Special)
65754	Redevelopment plan—2737 Potomac (Special)
65755	Redevelopment plan—4227 Cleveland and 4211 Russell (Special)
65756	Redevelopment plan—2714 Russell, 2738 and 2742-44 Armand and 3530 Juniata (Special)
65757	Redevelopment plan—2911 Nebraska and 3500 Halliday (Special)
65758	Redevelopment plan—4419 S. Grand (Special)
65759	Redevelopment plan—3309 Magnolia (Special)
65760	Redevelopment plan—2150 Lafayette (Special)
65761	Redevelopment plan—3424 Spring/3847 N. Utah (Special)
65762	Blighting—3109 Rauschenbach (Special)
65763	Repeals and replaces § 26.84.010, board of adjustment—qualifications of members (26.84.010)
65764	Leasehold Revenue Refunding Bonds (Special)
65765	Comptroller—funding for educational purposes (Special)
65766	Vacation—alley in city block 151 (Special)
65767	Parking—Carnahan Courthouse (Special)
65768	McPherson Avenue Residential Parking District (Special)
65769	Vacation—Scott from Euclid (Special)
65770	Vacation—alleys in city block 3990 (Special)
65771	Airport—Revenue Refunding Bonds (Special)
65772	Soulard Special Business District—tax levy (Special)
65773	Soulard Special Business District—tax levy (Special)
65774	Amends Ch. 4.07, conflict of interest requirements (4.07)
65775	Redevelopment plan—4360-72 Lindell (Special)
65776	Redevelopment plan—2-32 N. Boyle (Special)
65777	Grant—Fire Department for fire prevention program (Special)
65778	Vacation—Harper from Grand eastwardly (Special)
65779	Adds § 3.08.392, court costs—additional twenty dollars (3.08.392)
65780	Streets—honorarily designate 5400 Elizabeth to Hall of Fame Place (Special)
65781	Real estate—exchange with Port, LRA and Terminal Railroad (Special)
65782	Appropriation from Equitable Relief From Utility Tax Fund (Special)
65783	Adds § 20.26.291, interest from special revolving fund account (20.26.291)
65784	Grant—Fire Commissioner to fund fire safety program (Special)
65785	FY2002-2004 Local Law Enforcement Block Grant (Special)
65786	Use tax appropriations (Special)

65787 Euclid/Laclede Community Improvement District petition approved (Special)

65788 Ellenwood Subdivision Neighborhood contract approval (Special)

65789 Streets—temporarily close Hartford at Louisiana (Special)

65790 Repeals and replaces § 26.68.180, prohibition of posting signs (26.68.180)

65791 Vacation—Euclid and Children's Place (Special)

65792 Vacation—air rights Euclid along Children's Place (Special)

65793 Streets—designation of a portion of 23rd Street as Cassell Williams Court (Special)

65794 Vacation—Dodier from North Grand to Spring (Special)

65795 Vacation—Aubert Avenue from Page to Martin Luther King and east/west alley and north south alley in city block 3786 (Special)

65796 2003 St. Louis Works and 50/50 Sidewalk Program (Special)

65797 Stop site—four way stop at Page and Bayard (Special)

65798 Adds Ch. 3.43, information technology services agency (3.43)

65799 Amends § 11.18.060, litter—requirement of drive-in restaurants (11.18.060)

65800 Violation of Neighborhood Order of Protection (Special)

65801 Repeals §§ 11.62.010, 11.62.090, and 11.62.150, disposition permits of dead bodies (11.62)

65802 Adds new Ch. 11.75, Ephedrine or pseudo ephedrine (11.75)

65803 Redevelopment plan—amendment of Pierce Arrow Redevelopment Corporation (Special)

65804 Zoning—change to "F" in city block 5233 (Special)

65805 Appropriation from Airport Contingency Fund (Special)

65806 Grants—Parks, Recreation and Forestry with National Park Service for Chambers Park Rehabilitation (Special)

65807 Real property—Quit-claim deed with Bi-State (Special)

65808 Real property—Quit-claim deed with Bi-State (Special)

65809 Vacation—air rights above St. Charles between 10th and 11th (Special)

65810 Zoning—change to "J" in city block 461 (Special)

65811 Agreement—with American Red Cross for disaster relief (Special)

65812 Repeals and replaces § 11.04.110, public nuisances—collection of costs for abatement (11.04.110)

65813 Contract—remediation of storage tanks at Chain of Rocks and Howard Bend (Special)

65814 Contract—extension and improvement of Water Works (Special)

65815 Amends § 23.04.075, increase in surcharge on water bills (23.04.075)

65816 Easement—MSD (Special)

65817 Easement—MSD (Special)

65818 Repeals and replaces §§ 15.34.010, 15.34.020, 15.34.030, prostitution prohibition (15.34.010, 15.34.020, 15.34.030)

65819 Airport—issuance of Airport Revenue Bonds, Series 2003B (Special)

65820 Adds § 22.44.095, American Legion Memorial Park (22.44.095)

65821 Redevelopment plan—4138-5-, 4439, 4445 and 4455-59 West Florissant (Special)

65822 Redevelopment plan—2648 Armand Place (Special)

65823 Blighting—Gilmore Sites (Special)

65824 Adds Ch. 15.82, fireworks (15.82)

65825 Redevelopment plan—3301-09 S. Kingshighway (Special)

65826 Redevelopment plan—3611 Utah (Special)

65827 Redevelopment plan—4720 S. Broadway (Special)

65828 Redevelopment plan—2707 Indiana Avenue (Special)

65829 Redevelopment plan—4627-35 Ridgewood (Special)

65830 Redevelopment plan—3659 Cleveland (Special)

65831 Redevelopment plan—2204-08 S. Jefferson (Special)

65832 Redevelopment plan—1613 Dolman (Special)

65833 Redevelopment plan—2320 Louisiana (Special)

65834 Redevelopment plan—2330 Hickory Street (Special)

65835 Redevelopment plan—1838-50 S. 9th Street (Special)

65836 Redevelopment plan—2113 Sidney (Special)

65837 Redevelopment plan—3917 Flad (Special)

65838 Redevelopment plan—6050 McPherson (Special)

65839 Redevelopment plan—4900 Manchesterf (Special)

65840 Redevelopment plan—2017 Rutger (Special)

65841 Blighting—Salisbury, N. Florissant, Palm Street, 23rd Street and 25th Street, affirming Ordinance 65485 (Special)

65842 Redevelopment plan—3510 Itaska (Special)

65843 Redevelopment plan—Euclid/Laclede Area (Special)

65844 Blighting—Palm Street, affirming Ordinance 64889 (Special)

65845 Redevelopment plan—N. Florissant, Branch, N. 13th, Sullivan Area (Special)

65846 Redevelopment plan—St. Louis Place Park II (Special)

65847 Planned Unit Development District—North Market Planned Unit Development District (Special)

65848 Redevelopment plan—1527-29 Vail Place (Special)

65849 Blighting—Twentieth and Washington Area, affirming Ordinance 65583 (Special)

65850 Redevelopment plan—Bell Avenue/School Street, N. Compton/N. Theresa (Special)

65851 Redevelopment plan—JVL Renaissance II, affirming Ordinance 65723 (Special)

65852 Development Agreement—Drury Development Corporation (Special)

65853 Vacation—Bancroft and Sutherland (Special)

65854 Redevelopment area—Grace Lofts (Special)

65855 Redevelopment Agreement—McGowan Brothers Development Corp. (Special)

65856 Bonds—issuance of tax increment revenue notes Series 2003 (Special)

65857 TIF—Grand Center (Special)

65858 Tax Increment Revenue Notes (Special)

65859 Easement agreement (Special)

65860 Redevelopment plan—King Estates (Special)

65861 Right-of-way vacations (Special)

65862 Authorizes grant agreement (Special)

65863 Appropriations (Special)

65864 Repeals Ord. 65157 (Special)

65865 Street closure (Special)

65866 Issuance of package liquor license (Special)

65867 Adds Ch. 11.80, satellite dish antennas, satellite antennas or other similar devices (11.80)

65868 Amendment to easement agreement (Special)

65869 Easement agreements (Special)

65870 Easement agreements (Special)

65871 Budget (Special)

65872 Leasehold Revenue Refunding Bonds, Series 2003 (Special)

65873 Easement agreements (Special)

65874	Amends Ord. 64954, compensation for military personnel (4.10.190)
65875	Mental Health Board of Trustees inclusion in Employees Retirement System (Not codified)
65876	Real estate sale (Special)
65877	Borrowing of funds (Special)
65878	Sale/leaseback (Special)
65879	Authorizes Commissioner of Health to provide tuberculosis testing for general public (Special)
65880	Airport—concession agreement between city and The Bookmark, Inc. (Special)
65881	Airport—concession agreement between city and American Airlines Federal Credit Union (Special)
65882	Airport—concession agreement between city and Central Parking System of St. Louis, Inc. (Special)
65883	Grant—Health and Hospitals for St. Louis Healthy Hearts (Special)
65884	Adds § 5.58.015, supply purchase procedures (5.58)
65885	Redevelopment—3281 Jasper Park and 7174 Wellington (Special)
65886	Redevelopment plan—3611 Ohio (Special)
65887	Redevelopment plan—4423 Virginia (Special)
65888	Redevelopment plan—2941 Michigan (Special)
65889	Redevelopment plan—2146 S. Grand (Special)
65890	Redevelopment plan—2340 Park Ave. (Special)
65891	Redevelopment plan—2915 Allen Ave. (Special)
65892	Redevelopment plan—7016-18 and 7123 Michigan (Special)
65893	Redevelopment plan—3014 Indiana Ave. (Special)
65894	Redevelopment plan—2311 Arsenal St. (Special)
65895	Redevelopment plan—2509 and 2629-31 S. Kingshighway (Special)
65896	Redevelopment plan—4064 Castleman Ave. and 4211 Cleveland Ave. (Special)
65897	Redevelopment plan—701-707 Barton St. (Special)
65898	Redevelopment plan—1725 Mississippi Ave. (Special)
65899	Redevelopment plan—2000-2010 S. 39th St. (Special)
65900	Redevelopment plan—6590 Scanlan Ave. (Special)
65901	Redevelopment plan—4031-99 Laclede Ave. (Special)
65902	Redevelopment plan—2333 Tennessee and 2626 Louisiana Ave. (Special)
65903	Redevelopment plan—1026 Geyer Ave. (Special)
65904	Redevelopment plan—2929 Michigan Ave. (Special)
65905	Redevelopment plan—3003 Minnesota Ave. (Special)
65906	Redevelopment plan—North Broadway/St. Charles/N. Fourth/Locust (Special)
65907	Redevelopment plan—Terra Cotta Annex and Parking Garage (Special)
65908	Redevelopment plan—1501 Locust (Special)
65909	Tax increment revenue notes for Terra Cotta Annex and Parking Garage (Special)
65910	Redevelopment plan—1312 Washington Ave. (Special)
65911	Redevelopment plan—1312 Washington Ave. (Special)
65912	Tax increment revenue notes for 1312 Washington Ave. (Special)
65913	Redevelopment plan—1208 Mackay Place (Special)
65914	Redevelopment plan—6930 and 6942 Hancock Ave. (Special)
65915	Redevelopment plan—4200-02 Cook Ave. (Special)
65916	Redevelopment plan—300 S. Jefferson Ave. (Special)
65917	Redevelopment plan—2632 Virginia Ave. (Special)

65918 Redevelopment plan—2342 Hickory St. (Special)

65919 Redevelopment plan—514 Holly Hills Ave. and 6336-40 S. Grand Blvd. (Special)

65920 Redevelopment plan—2919 Michigan Ave. and 2919-21 S. Compton (Special)

65921 Transportation trust fund—appropriation to Bi-State (Special)

65922 Vacation—Salisbury from Hall to wharf (Special)

65923 Vacation—Lasalle at Mackay and east/west alley in city block 2277-W (Special)

65924 Vacation—Salisbury from Broadway and north/south alley in city block 1213 (Special)

65925 Amends § 25.01.030, building code (25.01)

65926 Amends § 25.03.020, mechanical code (25.03)

65927 Adds Ch. 25.20, existing building code (25.20)

65928 Stop site—two-way at Morganford and Osceola (Special)

65929 Amends § 25.32.360, property maintenance code (25.32)

65930 Grant—Emergency Management for responder equipment (Special)

65931 Parking Commission—purchase agreements and debt service (Special)

65932 Amends § 25.04.040, plumbing code (25.04)

65933 Real property—sale to Chouteau Point Realty city block 860 (Special)

65934 Streets—closing of 17th at Papin (Special)

65935 Real property—sale to Terri Lovett and Lee Johnson 4296 Washington (Special)

65936 Bond interest for police department (Special)

65937 Redevelopment area—Southtown (Special)

65938 Redevelopment—DDR Southtown (Special)

65939 Transportation sales tax—appropriation to Bi-State (Special)

65940 Airport—agreement with Directory Graphics (Special)

65941 Airport—assignment of Lease Midcoast and Signature Flight Support (Special)

65942 Airport—amendment to ground transportation policy ordinance (Special)

65943 Treasurer—sale of city block 99 (Marquette Garage) to Federal Reserve Bank (Special)

65944 Adds Ch. 25.36, smoke houses (25.36)

65945 Amends § 11.34.160, air pollution (11.34)

65946 Vacation—east/west alley in city block 216 (Special)

65947 Streets—closing Ninth Street in city blocks 462S and 467E (Special)

65948 Redevelopment—4901 Washington/615 N. Euclid (Special)

65949 Gate District—Housing Conservation District (Repealed by 67914)

65950 Redevelopment—4206 West Belle (Special)

65951 Redevelopment plan—4505 Olive Street (Special)

65952 Redevelopment plan—3128 Lemp Ave. and 3414 Missouri Ave. (Special)

65953 Redevelopment plan—2901 S. 18th Street (Special)

65954 Redevelopment plan—2923 and 2931 S. 18th St. and 1815-17 Crittenden Street (Special)

65955 Redevelopment plan—3922-68, 3919-29 and 3939-67 Lincoln Ave. (Special)

65956 Redevelopment plan—934 Rutger Street (Special)

65957 Redevelopment plan—209 N. 4th Street (Special)

65958 Redevelopment plan—1826 Lami St. (Special)

65959 Blighted—amended Twentieth St. and Washington Ave. (Special)

65960	Redevelopment plan—3323 Cherokee St. (Special)
65961	Redevelopment plan—1927 Marconi St. (Special)
65962	Redevelopment plan—Adams Park School and Adams Park Area (Special)
65963	Redevelopment plan—4246 Dewey Ave. (Special)
65964	Redevelopment plan—3126 Portis Ave. (Special)
65965	Redevelopment plan—Washington Ave. Loft Area (Special)
65966	Development plan—Washington Ave. Loft Area (Special)
65967	Redevelopment plan—2017 Cherokee St. (Special)
65968	Redevelopment plan—462 N. Taylor Ave. (Special)
65969	Redevelopment plan—4340 Cook Ave. (Special)
65970	Redevelopment plan—1205 N. Seventh St. (Special)
65971	Real property—sale by Treasurer to Drury Development private alley in city block 99 (Special)
65972	Tax increment revenue notes for Southtown Redevelopment Project (Special)
65973	Redevelopment plan—2500 S. 18th St. (Special)
65974	Redevelopment plan—Restoration St. Louis (Special)
65975	Redevelopment plan—Soulard Market Apartments (Special)
65976	Redevelopment plan—Soulard Apartments, L.P. (Special)
65977	Redevelopment plan—City Hospital Redevelopment (Special)
65978	Redevelopment plan—City Hospital Development, L.L.C. (Special)
65979	Redevelopment area—Printer's Lofts Redevelopment (Special)
65980	Redevelopment area—Fashion Square Redevelopment (Special)
65981	Redevelopment plan—Fashion Square, L.L.C. (Special)
65982	Redevelopment area—1601 Washington (Special)
65983	Redevelopment plan—1601 Washington Ave., L.L.C. (Special)
65984	Redevelopment plan—3321 Bendick Ave. (Special)
65985	Redevelopment plan—4206 Arsenal Street/3652-58 Fairview Ave./4160 Wyoming (Special)
65986	Redevelopment plan—2331 S. 12th Street/2016-18 Menard Street/2348 S. 9th (Special)
65987	Redevelopment plan—2236 and 2240 Nebraska Ave. (Special)
65988	Designates—Greg Freeman Park at Four Corners (22.44.380)
65989	Adds Ch. 17.99, parking commission finance corporation (17.99)
65990	Redevelopment plan—Printer's Lofts L.L.C. (Special)
65991	Adds §§ 11.32.070—11.32.105; repeals §§ 3—6 of Ord. 62523, smoking (11.32)
65992	Establishes bed and breakfast in city block 3129 (Special)
65993	Repeals and replaces § 4.18.131, firemen's retirement system (4.18)
65994	Appropriation—city's Communications Division (Special)
65995	Streets—temporary closing of Enright at Taylor (Special)
65996	Adds § 17.10.041, speed regulations (17.10)
65997	Stop site—two-way Newstead at Cook (Special)
65998	Stop site—two-way Newstead at Belle Place (Special)
65999	Euclid/Laclede Community Improvement District—rate of assessment (Special)
66000	Housing Conservation District—removing city blocks 1159 and 1741S (Special)
66001	Blighting—Natural Bridge and North Grand Area (Special)

66002 Vacation—Leffingwell, Montgomery, north/south alley in city block 2366 and east/west alley in city block 2367 (Special)

66003 Vacation—north/south alley in city block 3761 (Special)

66004 Redevelopment plan—Northview Village Area (Special)

66005 Real property sale to LRA 4205-09 Cote Brilliante (Special)

66006 Tax increment financing—Soulard Market (Special)

66007 Tax increment financing—City Hospital (Special)

66008 Tax increment financing—Printer's Lofts (Special)

66009 Tax increment financing—Fashion Square (Repealed by 67712)

66010 Tax increment financing—1601 Washington Square (Special)

66011 Airport—intergovernmental agreement with Berkeley, Kinlock, County and Ferguson (Special)

66012 Vacation—east/west alley in city block 939 and Lucas between 20th and 21st (Special)

66013 Real property—sale to McGowan Brothers 1300-30 Convention Plaza (Special)

66014 Vacation—north/south alley and westernmost east/west alley in city block 1463 (Special)

66015 Streets—permanent closing of Judith Court at Gasconade (Special)

66016 Lease agreement for Lindell Pavilion to Forest Park Forever, Inc. (Special)

66017 Tax increment financing—2500 South 18th Street (Special)

66018 Dogtown Walk Townhouse PUD (Special)

66019 Grant—weapons of mass destruction exercise (Special)

66020 Grant—community emergency response team (Special)

66021 Grant—citizens corps group (Special)

66022 Grant—homeland security program (Special)

66023 Grant—purchase of emergency responder equipment (Special)

66024 Streets—excavation restoration program (Special)

66025 Streets—temporarily close College at West Florissant (Special)

66026 Streets—loan agreement with DNR for energy efficiency (Special)

66027 Streets—temporarily close 19th Street at Farragut (Special)

66028 Streets—agreement with Missouri Highway and Transportation Commission for maintenance of certain city streets (Special)

66029 Repeals and replaces §§ 20.30.030, 20.30.040, 20.30.100, 20.30.110 and 20.30.120, excavations (20.30)

66030 Grant—Health and Hospitals for Bio Watch (Special)

66031 Vacation—air rights above St. Charles Street east of 11th (Special)

66032 Vacation—air rights over Children's Place and Euclid (Special)

66033 Vacation—Hamilton Avenue south of Delmar (Special)

66034 Vacation—St. Charles between 4th and Broadway, Locust between 4th and Broadway, Broadway at St. Charles and St. Charles (Special)

66035 Vacation—"L" shaped alley in city block 3962 (Special)

66036 Vacation—alley in city block 4783 (Special)

66037 Vacation—Belmont Street and alley between Belmont and Spruce in city block 220 (Special)

66038 Vacation—east/west alley in city block 1639 (Special)

66039 Grant—Health and Hospitals with EPA for lead poisoning prevention and indoor air education (Special)

66040 Airport—amend budget fund 1511 (Special)

66041 Grant—airport for project 3-29-0085-79-2003 (Special)

66042 Grant—airport for project 3-29-0085-2003 (Special)

66043 Grant—airport for project 3-29-0085-73-2002—taxiways (Special)

66044 Grant—airport for project 3-29-0085-76-2003—security (Special)

66045 Grant—airport for project 3-29-0085-77-2003—airfield lighting (Special)

66046 Airport—concession agreement with Dynamic Vending (Special)

66047 Excise—prohibition of new licenses in twenty-fourth ward (Special)

66048 Grant—parks for a recreation community youth leadership project (Special)

66049 Redevelopment plan—3317 Oregon, 3642 Michigan and 3919 Pennsylvania (Special)

66050 Redevelopment plan—5800-48 Kennerly Ave. and 5843-45, 5859, 5871-77, 5883 and 5872-98 Maffit Ave. (Special)

66051 Redevelopment plan—5206 S. 38th St. (Special)

66052 Redevelopment plan—Annie Malone Dr./N. Market St./Whittier St./Garfield Ave. (Special)

66053 Redevelopment plan—2244 S. Kingshighway Blvd. (Special)

66054 Redevelopment plan—4621 Enright Ave. (Special)

66055 Redevelopment plan—4975 Wabada Ave. (Special)

66056 Redevelopment plan—2137-39 Sidney St. (Special)

66057 Redevelopment plan—2233 McNair Ave. (Special)

66058 Redevelopment plan—6911-15 Garner Ave. and 2027-29 Forest Ave. (Special)

66059 Redevelopment plan—3511 Missouri Ave. (Special)

66060 Redevelopment plan—1027 S. Taylor Ave. (Special)

66061 Redevelopment plan—3217 Geyer Ave. (Special)

66062 Redevelopment plan—3009-11 Sidney St. (Special)

66063 Redevelopment plan—2625 Nebraska Ave. (Special)

66064 Redevelopment plan—Salisbury St., N. Florissant Ave., Palm St., 23rd St. and 25th St. (Special)

66065 Redevelopment plan—5124 Maple Ave. (Special)

66066 Redevelopment plan—7310 Michigan Ave. (Special)

66067 Redevelopment plan—1408-10 Wright St. (Special)

66068 Redevelopment plan—4180 Shenandoah Ave./2306 Klemm St. (Special)

66069 Redevelopment plan—5117 Cabanne Ave. (Special)

66070 Redevelopment plan—4533 Westminster (Special)

66071 Redevelopment plan—4001 Wyoming (Special)

66072 Grant—airport for project number 3-29-0085-78-2003 (Special)

66073 Grant—airport for project number 3-29-0085-60-2001 (Special)

66074 Airport—passenger vehicle rental concessions (Special)

66075 2004 block grant, CDBG, HOME, ESG and HOPWA funds (Special)

66076 Repeals and replaces §§ 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070 and 23.20.020—23.20.040; repeals §§ 23.16.050, 23.16.070 and 23.16.080, water rates (23.06, 23.16, 23.18, 23.20)

66077 Zoning—seven parcels to "B" in city blocks 4185, 4186, 2095 and 2096 (Special)

66078 Zoning—three parcels to "G" in city block 4189 (Special)

66079 Zoning—one parcel to "F" in city block 1333 (Special)

66080 Zoning—one parcel to "G" in city block 380 (Special)

66081 Zoning—two parcels in city blocks 3643 and 3644.2 (Special)

66082 Zoning—three parcels to "C" in city blocks 4583 and 3910.05 (Special)

66083 Adopts code of rules and regulations for taxicabs; suspends enforcement of Ch. 8.98, taxicabs and service cars (8.98)

66084 Amends §§ (4)(B) and (D), (7)(1) and (2), (20)(D) of Ord. 65431 and §§ 8.29.030, 8.29.060 and 8.29.180, cable television (8.29)

66085 Grant—Board of Election Commissioners for records management and preservation (Special)

66086 Grant—Register-records management and preservation project (Special)

66087 Grant—BPS-records management (Special)

66088 Repeals and replaces Ch. 3.44; repeals Ord. 62710, Civil Rights Enforcement Agency (3.44)

66089 Real property—sale of Gaslight Square Developers 4275 and 4279 Olive (Special)

66090 Streets—two-way stop at Goodfellow and Northcrest (Special)

66091 Real property—sale to Roberts Village Redevelopment 1528 N. Kingshighway (Special)

66092 TIF revenues—Edison Brothers Warehouse (Special)

66093 Vacation—Euclid from Parkview Place to Children's Place (Special)

66094 Amends § 2 of Ord. 64954 and § 4.10.020, classified service plan (4.10)

66095 Excise—prohibition of new package and drink licenses in Eighteenth Ward (Special)

66096 Real property—sale to LRA 1407 and 1461 North Market Street (Special)

66097 Excise—prohibition of new package and drink licenses in Second Ward (Special)

66098 Establishes Fox Park Historic District (Special)

66099 Redevelopment plan—4054 Nebraska (Special)

66100 Redevelopment plan—3466 Nebraska (Special)

66101 Redevelopment plan—2708-14 Wyoming (Special)

66102 Redevelopment plan—4944 Washington and 5236 Washington (Special)

66103 Redevelopment plan—4214-16 Dewey (Special)

66104 Redevelopment plan—3655 Cleveland (Special)

66105 Redevelopment plan—4006-08 Russell (Special)

66106 Redevelopment plan—4296 Washington (Special)

66107 Redevelopment plan—1513-23 S. Compton and 3201-27 St. Vincent (Special)

66108 Redevelopment plan—7140 Wellington (Special)

66109 Redevelopment plan—6919-29 Waldemar (Special)

66110 Redevelopment plan—1528 Prather (Special)

66111 Redevelopment plan—1603 McCausland (Special)

66112 Redevelopment plan—2318 Russell (Special)

66113 Redevelopment plan—2013-17 James Street (Special)

66114 Redevelopment plan—2904 Missouri (Special)

66115 Redevelopment plan—3018 S. Jefferson (Special)

66116 Redevelopment plan—1220 Sidney (Special)

66117 Redevelopment plan—1343 Montclair (Special)

66118 Redevelopment plan—1725 Dick Gregory Place (Special)

66119 Redevelopment plan—Wyoming/ Whithnell/S. 9th (Special)

66120 Redevelopment plan—3800-08 Laclede (Special)

66121 Redevelopment plan—5232 Lansdowne (Special)

66122 Redevelopment plan—N. Grand and St. Louis Avenue (Special)

66123 Redevelopment plan—5206 Natural Bridge (Special)

66124 Redevelopment plan—4329 Juniata (Special)

66125 Redevelopment plan—7100 Michigan and 7415 Tennessee (Special)

66126 Redevelopment plan—7411-15 S. Broadway (Special)

66127 Redevelopment plan—8614-24 S. Broadway (Special)

66128 Redevelopment plan—5601-03 S. Broadway (Special)

66129 Redevelopment plan—Salisbury St./N. 11th St./N. Florissant (Special)

66130 Amends § 2 of Ord. 65730, East Loop Parkview Gardens Business District (Special)

66131 Grant—lead hazard reduction demonstration program (Special)

66132 Redevelopment plan—5907, 5920, 5955 and 5966 Sherry (Special)

66133 Redevelopment plan—5500 West Park (Special)

66134 Agreement with Bi-State for Lansdowne Bridge (Special)

66135 Streets—four-way stop at 20th and East Madison (Special)

66136 Amends § 2 of Ord. 65061 and § 8.108A.100, vendors (8.108A)

66137 Streets—temporarily close Thornby Place at Bartmer Avenue (Special)

66138 Vacation—21st Street between Washington and Lucas (Special)

66139 Zoning—various parcels to "D" in city blocks 4961, 4962, 4963, 4964 and 5433 (Special)

66140 Zoning—one parcel to "D" in city block 787 (Special)

66141 Vacation—9th Street at Carroll northwardly (Special)

66142 Vacation—Monroe Street from 9th to 10th (Special)

66143 Streets—temporarily close Destrehen at Blair (Special)

66144 Vacation—Stadium Plaza (Special)

66145 Real property—sale to Affordable City Homes 3114 Hickory (Special)

66146 Vacation—Lucas Avenue from Jefferson to 23rd Street (Special)

66147 Streets—temporarily close Amherst Terrace at east-west alley to city block 3836 (Special)

66148 Lease agreement—Continental Cement Company (Special)

66149 Streets—removal of barricades at Cleveland and Tower Grove and to barricade east of Tower Grove (Special)

66150 Real property—sale to Metropolitan Park and Recreation District 10800 and 10800R Riverview Drive (Special)

66151 Vacation—public walk in city block 4583 (Special)

66152 Real property—sale in city block 5098 to Swaine and Rios (Special)

66153 Grant—Health and Hospital with Missouri for Immunization (Special)

66154 Grant—Fire Department with Missouri for cardiovascular/diabetes/follow-up and chronic disease program (Special)

66155 Excise—prohibition of new package and drink licenses in Fourth Ward (Special)

66156 Grant—Health and Hospital with Drug Court for screening for infectious diseases (Special)

66157 Grant—Health and Hospitals with Mental Health Board for outreach service (Special)

66158 Redevelopment plan—1014-16 Allen (Special)

66159 Redevelopment plan 2348 S. 13th Street (Special)

66160 Redevelopment plan—420 N. Skinker (Special)

66161 Redevelopment plan—S. Kingshighway/Fairview Ave./Potomac (Special)

66162 Redevelopment plan—6732-34 Garner Ave. (Special)

66163 Redevelopment plan—3710 Humphrey (Special)

66164 Redevelopment plan—4211 Flora Place (Special)

66165 Redevelopment plan—3416-18 Wisconsin and 3317-21 Indiana (Special)

66166 Redevelopment plan—2117 Utah (Special)

66167 Redevelopment plan—5442 Delor (Special)

66168 Redevelopment plan—3726 Arsenal (Special)

66169 Redevelopment plan—4125 Flora Place (Special)

66170 Redevelopment plan—2639 Cherokee (Special)

66171 Redevelopment plan—2115-17 Withnell (Special)

66172 Redevelopment plan—4254 and 4258-60 Manchester (Special)

66173 Redevelopment plan—Manchester/McCausland/Forest Park (Special)

66174 Redevelopment plan—Bremen/N. 20th/Angelica/N. 11th (Special)

66175 Redevelopment plan—8650 Riverview Blvd. (Special)

66176 Redevelopment plan—3620 French (Special)

66177 Redevelopment plan—7918-20 Minnesota (Special)

66178 Redevelopment plan—4407 Tennessee (Special)

66179 Redevelopment plan—5700 Columbia and 2607 January (Special)

66180 Public works project—Dr. Martin Luther King, Jr. Drive (Special)

66181 Repeals and replaces Ch. 15.42, public nuisances (15.42)

66182 Zoning—parcels in city blocks 4636.13, 5473 and 1690 to "H" (Special)

66183 Amends § 2 of Ord. 61186 and § 17.24.070, parking (17.24)

66184 Excise—prohibition of new package or drink licenses in First Ward (Special)

66185 Zoning—parcels in city blocks 4501.05 and 4500.01 to "F" (Special)

66186 Adds Ch. 15.131, concealed weapons (15.131)

66187 Zoning—parcels in city block 4584 to "A" (Special)

66188 Vacation—Second Street between East Desoto and East Prairie (Special)

66189 Redevelopment plan—2803-23 Russell (Special)

66190 Redevelopment plan—Central Industrial Corridor East Area (Special)

66191 Airport—concession agreement with Airport Shoeshine Corp. (Special)

66192 Voter proposition—date of general municipal election (Charter Art. II)

66193 Amends §§ 34 and 35 of Ord. 42880 and § 2.08.330, election rules and procedures (2.08)

66194 Redevelopment plan—1619 Washington (Special)

66195 Redevelopment plan agreement—1619 Washington (Special)

66196 TIF notes—1619 Washington (Special)

66197 Redevelopment plan—Security Building Redevelopment Area (Special)

66198 Redevelopment plan agreement—Security Building agreement (Special)

66199 TIF notes—Security Building redevelopment (Repealed by 67702)

66200 Exempts Missouri Development Finance Board property from taxes, assessments and gross receipts taxes (Special)

66201 Authorizes 2004 St. Louis Works and 50/50 Sidewalk Programs (Special)

66202 Redevelopment plan—N. 9th St./Madison St./N. 10th/Monroe (Special)

66203 Redevelopment plan—Amended Northview Village (Special)

66204 Redevelopment plan—Page/Walton/Newberry Terrace/Vernon (Special)

66205 Redevelopment plan—6134 Virginia (Special)

66206 Redevelopment plan—3828 Fairview Ave. (Special)

66207 Redevelopment plan—4632-42 West Florissant Ave. (Special)

66208 Redevelopment plan—Clay/Lee/Lexington/San Francisco/N. Taylor Area (Special)

66209 Redevelopment plan—2337 S. Grand Blvd., 3616-8, 3622-24 and 3626-28 Botanical Ave. (Special)

66210 Redevelopment plan—3015-19 Ohio Ave. (Special)

66211 Redevelopment plan—3448 Missouri Ave. (Special)

66212 Redevelopment plan—3918 Missouri Ave. (Special)

66213 Redevelopment plan—3705-07 Bates St. (Special)

66214 Redevelopment plan—6105 Westminster Place (Special)

66215 Redevelopment plan—4450 Maffitt Ave. (Special)

66216 Establishes and creates Catlin Townhouse Planned Unit Development District in city block 3915 (Special)

66217 Redevelopment plan—1919 Arsenal Street and 2832 Missouri Ave. (Special)

66218 Redevelopment plan—4460-62 Lexington Ave. (Special)

66219 Redevelopment plan—3905-17, 3935-37, 3943-51 and 3957-3969 Cottage Ave. (Special)

66220 Redevelopment plan—2610 California Ave. (Special)

66221 Designates Hampton Inn and Suites at the Highlands at Forest Park Redevelopment Area (Special)

66222 Authorizes redevelopment agreement with Highlands Hotel, LLC (Special)

66223 Tax increment and transportation development revenue notes series 2004 A and B for Highlands Hotel at Forest Park redevelopment project (Special)

66224 Establishes Gaslight Square Community Improvement District (Special)

66225 Agreement for Torch Relay Services with the Organizing Committee for the Olympic Games Athens 2004 (Special)

66226 Adds Ch. 25.62, repair permit issuance (25.62)

66227 Adds § 14.03.230; amends § 14.01.110, definitions and general regulations (14.01, 14.03)

66228 Redevelopment plan—I-70 and Goodfellow (Special)

66229 Zoning—parcels in city block 6458 to "G" (Special)

66230 Repeals and replaces § 4.16.480, city employee retirement system (4.16)

66231 Redevelopment plan—4435-39 Enright (Special)

66232 Airport—revenue commercial paper notes (Special)

66233 Redevelopment plan—Hampton/Wilson (Special)

66234 TIF notes—MLK Plaza redevelopment (Special)

66235 TIF notes—Cupples Station redevelopment (Special)

66236 Designates Catlin Townhomes Redevelopment Area (Special)

66237 Redevelopment plan—agreement with Rothschild Winzerling LLC (Special)

66238 TIF notes—Catlin Townhomes redevelopment (Special)

66239 Redevelopment plan—Shenandoah Place Redevelopment Area (Special)

66240 Redevelopment plan—agreement with Minnesota Development Partners (Special)

66241 TIF note—Shenandoah Place redevelopment (Special)

66242 Affordable Housing Commission appropriation (Special)

66243 Approves City of St. Louis report to the Gaming Commission (Special)

66244 Adds § 11.02.101; amends § (12)(b) of Ord. 59121 and § 11.02.355, solid waste disposal (11.02)

66245 Airport—supplemental appropriation (Special)

66246 Streets—temporary closing of East 14th at O'Fallon (Special)

66247 Real property—sale of 1910 and 1922 Park Avenue to Near Southside Improvement Corporation (Special)

66248 Real property—sale of 3517 N. 22nd and 3525 N. 23rd to Better Living Communities (Special)

66249 Streets—temporary closing of Etzel at Blackstone (Special)

66250 Real property—sale of property in St. Louis County to Bellefontaine Neighbors (Special)

66251 Amends § 2 of Ord. 62608 and § 20.30.140, excavations (20.30)

66252 Real property—sale of 5700 Arsenal to 5700 Property LLC (Special)

66253 Amends § 22.42.040; repeals Ord. 65675, park, square or plaza land use (22.42)

66254 Vacation—alleys in city block 4699-N (Special)

66255 Repeals and replaces §§ 4, 5 and 7 of Ord. 62473 and §§ 11.03.040, 11.03.050 and 11.03.070, solid waste management district (11.03)

66256 Vacation—alley in city block 4018 (Special)

66257 Adds § 22.44.097, designation of parks and other recreational facilities (22.44)

66258 Redevelopment plan—6100 Waterman (Special)

66259 Amends § 2 of Ord. 60419 and § 5.35.050, capital fund (5.35)

66260 Vacation—alley in city block 1059 (Special)

66261 Vacation—alleys in city block 5473 (Special)

66262 Vacation—Charless from Jefferson to alley in city block 1401-S (Special)

66263 Vacation—Indiana from Potomac to alley and alley in city block 1562 (Special)

66264 Repeals and replaces Ch. 8.13; repeals Ord. 63305, alarm businesses (8.13)

66265 Vacation—St. Charles from 4th to Broadway, Locust from 4th to Broadway and Broadway to St. Charles (Special)

66266 Budget (Special)

66267 Real estate—sale to Altes, LLC property in city block 6277 (Special)

66268 Appropriation for lead remediation (Special)

66269 Airport—lease with McDonnell Douglas for Northern Tract (Special)

66270 Borrowing of funds (Special)

66271 Amends § 2 of Ord. 66227 and § 14.03.230, general regulations (14.03.230)

66272 Amends Ch. 4.10, classified service plan (4.10)

66273 Transportation sales tax appropriation (Special)

66274 Transportation Trust Fund appropriation to Bi-State (Special)

66275 Repeals and replaces Ord. 61755 and § 21.08.080, leasing unimproved wharves (21.08.080)

66276 Voter proposition—increase fines, amends Charter Art. IV Section 24 (Failed)

66277 Excise—prohibition of new package or drink in Twenty-second Ward (Special)

66278 Appropriation for Parking Commission (Special)

66279 Repeals and replaces Ords. 64950 and 65519 treasury division employees (4.26.015—4.26.023, 4.26.040—4.26.060)

66280 Voter proposition—non-binding preferential vote of management of Police Department (Special)

66281 HIPAA procedures (Special)

66282 Vacation—Singleton Street from 17th (Special)

66283 Redevelopment plan—Annie Malone Dr./ N. Market Street/Whittier St./Garfield Ave., affirming Ord. 66052 (Special)

66284 Redevelopment plan—2621-23 Oregon (Special)

66285 Redevelopment plan—2920-22 Pennsylvania Ave. (Special)

66286 Redevelopment plan—1501-05 Vail Place (Special)

66287 Zoning—two parcels in city blocks 919 and 2012 to "I" (Special)

66288 Zoning—one parcel in city block 2925 to "C" (Special)

66289 Amended redevelopment plan—South Grand Area affirming Ordinance 61498 (Special)

66290 Redevelopment plan—6622 Michigan Ave. (Special)

66291 Redevelopment plan—2701-47 Coleman Ave. and 2700-48 Bacon St. (Special)

66292 Redevelopment plan—2214 January Ave. (Special)

66293 Redevelopment plan—1944 Berra Court (Special)

66294 Redevelopment plan—4217 and 4243-45 Swan Ave. (Special)

66295 Redevelopment plan—5702 Saloma Ave. (Special)

66296 Redevelopment plan—5401 Robin Ave. (Special)

66297 Redevelopment plan—Sullivan Ave./ Dodier St./N. 23rd St./N. 25th St. (Special)

66298 Redevelopment plan—5018 and 5055-59 Raymond Ave. (Special)

66299 Redevelopment plan—3526-28 Papin St. (Special)

66300 Redevelopment plan—4012 Juniata St. (Special)

66301 Redevelopment plan—4200-66 and 4201-89 Olive St. and 501 N. Whittier St. (Special)

66302 Redevelopment plan—2116-18 Cherokee St. (Special)

66303 Redevelopment plan—2216 Sidney St. (Special)

66304 Redevelopment plan—4127-29 Flad Ave. (Special)

66305 Redevelopment plan—2741 Accomac St. (Special)

66306 Redevelopment plan—1856 Menard St. (Special)

66307 Redevelopment plan—3821 Virginia Ave. (Special)

66308 Redevelopment plan—5342 Magnolia Ave. (Special)

66309 Redevelopment plan—3835 Flora Place (Special)

66310 Redevelopment plan—2161 and 4576 E. Fair Ave. (Special)

66311 Zoning—one parcel in city block 993 to "H" (Special)

66312 Zoning—parcels in city block 528 to "I" (Special)

66313 Zoning—parcels in city blocks 4791 and 4803 to "F" (Special)

66314 Waterman/Lake Special Business District—continue levy proposition (Special)

66315 Washington Place Special Business District—continue levy proposition (Special)

66316 Westminster/Lake Special Business District—continue levy proposition (Special)

66317 Washington Place Special Business District—continue levy proposition (Special)

66318 Waterman/Lake Special Business District—continue business proposition (Special)

66319 Westminster/Lake Special Business District—continue levy proposition (Special)

66320 Zoning—parcels in city block 4387 to "F" (Special)

66321 Zoning—parcels in city block 3077 to "J" (Special)

66322 Zoning—parcels in city blocks 5646 and 5653 to "F" (Special)

66323 Airport—concession with Clear Channel Outdoor, Inc. (Special)

66324 Airport—lease with Trans States Airlines (Special)

66325 Airport—fourth supplemental appropriation for W-1W expansion program (Special)

66326 Downtown St. Louis Community Improvement District approval of petition (Special)

66327 Voter proposition—amend Charter Art. XVIII, civil service amendment (Failed)

66328 Voter proposition—restructuring Board of Aldermen (Failed)

66329 Voter proposition—reorganization of city offices, city office reorganization (Failed)

66330 Voter proposition—restructure finance offices, city finance amendment (Failed)

66331 Vacation—east/west alley in city block 2277-E (Special)

66332 Vacation—north/south alley in city block 2141 (Special)

66333 Vacation—Children's Place, west of Taylor (Special)

66334 Vacation—Spring Ave., Bernard to railroad (Special)

66335 Vacation—Second St. between East Prairie and East Gano (Special)

66336 Vacation—Leamington Ave. at Wellington Court (Special)

66337 Grant—improvements along Kingshighway and Chippewa (Special)

66338 Redevelopment plan—Benton/Glasgow Area affirming Ords. 61558 and 62100 (Special)

66339 Vacation—correcting legal description to Ord. 66014 for east/west alley in city block 1463 (Special)

66340 Vacation—Oriole St. between Switzer and railroad (Special)

66341 Redevelopment plan—3221, 3227 and 3248-50 California (Special)

66342 Redevelopment plan—3109 Meramec (Special)

66343 Redevelopment plan—1517 Theresa (Special)

66344 Vacation—Hamburg from Hildesheim to 7430 Hildesheim (Special)

66345 Redevelopment plan—5180 Maple (Special)

66346 Redevelopment plan—1129 Penrose St. (Special)

66347 Redevelopment plan—4712 Olive St. (Special)

66348 Redevelopment plan—4545 Lindell Blvd. (Special)

66349 Redevelopment plan—2934 Milton Blvd. (Special)

66350 Redevelopment plan—5624 Bischoff Ave. (Special)

66351 Redevelopment plan—5323 Elizabeth Ave. (Special)

66352 Redevelopment plan—2618 S. 13th St. (Special)

66353 Redevelopment plan—2868-70 McNair Ave. (Special)

66354 Redevelopment plan—4251 Cleveland Ave. (Special)

66355 Redevelopment plan—amends Ord. 66064 for Salisbury, N. Florissant, Palm, 23rd and 25th St. Area (Special)

66356 Planned unit development—city block 1087.05, 1088 to be known as the "5th Ward Elderly Development Planned Unit Development District (Special)

66357 Redevelopment plan—2408-14 McNair Ave. and 2221 California Ave. (Special)

66358 Redevelopment plan—1014-16 and 1217-19 Barton St., 2200 S. 12th St. and 1107 Sidney St. (Special)

66359 Redevelopment plan—1855-57 Russell Blvd. (Special)

66360 Redevelopment plan 2638 Accomac St., 2634 and 2638 Shenandoah Ave. and 2701-03 Ann Ave. (Special)

66361 Redevelopment plan—3618 Nebraska Ave. 3220 Winnebag St. and 3722 Louisiana Ave. (Special)

66362 Redevelopment plan—2818 Wyoming St. (Special)

66363 Redevelopment plan—3715 Humphrey St. and 3923 and 3937 Hartford St. (Special)

66364 Redevelopment plan—3917 Connecticut St. (Special)

66365 Redevelopment plan—2306-08 Cherokee St. (Special)

66366 Redevelopment plan—3333 Illinois Ave. (Special)

66367 Redevelopment plan—2217 Arsenal St. and 3415 Lemp Ave. (Special)

66368 Redevelopment plan—3510 and 3520 Illinois Ave., 3419-27 Missouri Ave. and 3443 and 3453 Indiana Ave. (Special)

66369 Streets—honorarily designates 4000 block of Sullivan as "Jimmie Irons Place" (Special)

66370 Maintenance agreement with Missouri Highway and Transportation Commission (Special)

66371 Ellenwood Neighborhood Improvement District final costs (Special)

66372 Streets—temporarily closes Dolman at Lafayette and Chouteau (Special)

66373 Streets—opens Chouteau to Lafayette to be named Truman Parkway (Special)

66374 Repeals and replaces § 4 of Ord. 63633 and § 11.56.190, disease and disease prevention (11.56.190)

66375 Streets—temporarily closes Greer at Vandeventer (Special)

66376 Repeals Ords. 53592 and 64273 [§§ 20.28.150—20.28.210], obstructions and encroachments (Repealer)

66377 Amends §§ 11.02.140—11.02.190, solid waste disposal (11.02.140—1.02.190)

66378 Amends Ord. 62622 for changing qualifications of Commissioners for Central West End North Special Business District (Special)

66379 Vacation—sidewalk abutting city block 3887 on Parkview Place (Special)

66380 Zoning—certain parcels in city blocks 2006 and 2007 to "I" (Special)

66381 Zoning—certain parcel in city block 2063 to "C" (Special)

66382 Repeals and replaces Ords. 64947 and 65518 [§§ 4.30.010—4.30.024], parking meter division employees (4.30.010—4.30.024)

66383 Adds Ch. 17.100, O'Fallon Park/West Florissant residential parking district (17.100)

66384 Repeals and replaces Ord. 65206 [Ch. 10.04], dogs and cats (10.04)

66385 Zoning—Certain parcels in city block 3881 to "D" (Special)

66386 Adds Ch. 17.101, Buckingham Court residential parking district (17.101)

66387 Airport—grant for Project 3-29-0085-83-2004 (Special)

66388 Airport—grant for Project 3-29-0085-84-2004 (Special)

66389 Airport—grant for Project 3-29-0085-85-2004 (Special)

66390 Airport—grant for Project 3-29-0085-86-2004 (Special)

66391 Airport—grant for Project 3-29-0085-87-2004 (Special)

66392 Airport—grant for Project 3-29-0085-89-2004 (Special)

66393 Airport—real estate sale to city of Hazelwood (Special)

66394 Vacation—east/west alley in city block 4072-S (Special)

66395 Redevelopment plan—1359 Belt Ave. (Special)

66396 Redevelopment plan—5151 Natural Bridge Ave. (Special)

66397 Repeals and replaces Ords. 64945 and 65520 [Ch. 4.44], collection division employees (4.44)

66398 Repeals and replaces Ords. 64946 and 65522 [Ch. 4.28], license collector employees (4.28)

66399 Repeals and replaces Ords. 64943 and 65517 [Ch. 4.34], recorder of deeds employees (4.34)

66400 Redevelopment plan—525 S. Jefferson Ave. (Special)

66401 Amends Ch. 4.54, medical examiner employees (4.54)

66402 Grant—fire department to fund fire operations and safety program (Special)

66403 Redevelopment plan—South Grand Blvd./ LaSalle St./Carr Lane Ave./Hickory St. (Special)

66404 Excise—prohibition against new package or drink in Tenth Ward (Special)

66405 Redevelopment plan—3733-45 and 3805-21 Lindell Blvd. and 3734-3822 Westminster Pl. (Special)

66406 Grant—fire department to fund public access defibrillation program (Special)

66407 Redevelopment plan—Dr. Martin Luther King Dr./Sheridan Ave./Webster Dr./ Thomas St. (Special)

66408 Redevelopment plan—2923 Lambdin Ave.(Special)

66409 Redevelopment plan—2601-41 Delmar Blvd. (Special)

66410 Planned unit development district for city block 4607.06 known as "Plateau Place Subdivision Planned Unit Development District (Special)

66411 Planned unit development district for city block 4621.04 known as "Forest Place Subdivision Planned Unit Development District (Special)

66412 Redevelopment plan—410 North Jefferson Redevelopment Area pursuant to the real property tax (Special)

66413 Redevelopment plan—authorizes execution of redevelopment agreement between city and 410 N. Jefferson, LLC (Special)

66414 TIF—410 N. Jefferson redevelopment project (Special)

66415 Redevelopment area known as the Barton Street Lofts Redevelopment Area; establishing the Barton Street Lofts (Special)

66416 Redevelopment agreement between city and Tabernacle Lofts (Special)

66417 Repeals and replaces Ord. 62173 [11.60.200], drugs (11.60.200)

66418 TIF—Barton Street Lofts (Special)

66419 Repeals and replaces Ord. 61507 [Ch. 11.61], paraphernalia for use with illegal drugs (11.61)

66420 TIF—Argyle redevelopment (Special)

66421 Redevelopment area known as the 1133 Washington redevelopment area (Special)

66422 Redevelopment plan, redevelopment area, redevelopment project—authorizes execution of redevelopment agreement between city and Washington Ave. (Special)

66423 Tax increment revenue notes—issuance for Washington Redevelopment Project (Special)

66424 Grant—fire department for "Project Safe Escape" (Special)

66425 Redevelopment area known as the Warehouse of Fixtures redevelopment area (Special)

66426 Affirms adoption of redevelopment plan, redevelopment area, redevelopment project; redevelopment agreement between city and University Village Apartments (Special)

66427 Tax increment revenue notes—Warehouse of Fixtures redevelopment project (Special)

66428 Note purchase agreement—920/1000 Olive, LLC and U.S. Bank (Special)

66429 Real property—sale of property in city blocks 822 and 1250 to LCRA (Special)

66430 Amends Ord. 65703, redevelopment area known as the Grand Center redevelopment area (Special)

66431 Amends Ord. 65857; approves tax increment financing redevelopment agreement for Grand Center redevelopment area (Special)

66432 Vacation—east/west alley in city block 1031 (Special)

66433 Vacation—Hickory from Carr Lane to Grand (Special)

66434 Redevelopment agreement between city and Rothschild Development LTD (Special)

66435 Tax increment revenue notes—Maryland Plaza North (Special)

66436 Redevelopment agreement between city and Maryland Plaza South LLC (Special)

66437 Tax increment revenue notes—Maryland Plaza South (Special)

66438 Adds § 5.60.025, sales of surplus and condemned property (5.60.025)

66439 Redevelopment plan—3401-3509 N. 11th, 1100-12 and 1101-11 Destrehan (Special)

66440 Real property—sale to LRA property in city blocks 2157, 2158, 2159 and 2160 (Special)

66441 Airport—concession with Southwestern Bell Telephone (Special)

66442 Real property—sale to Roberts Brothers Properties property in city block 5484 (Special)

66443 Real property—sale to David and Shirley Trang property in city block 5314 (4610 Varrelmann); repeals Ord. 64656 (Special)

66444 Airport—concession agreement for Airport News and Gift Concession with Paradies-Concession II-Arch, Inc. (Special)

66445 Airport—grant agreement for project number 3-29-0085-75-2002 (Special)

66446 Lease—St. Louis Multimodal Station with Amtrak and Greyhound (Special)

66447 Real property—sale to LRA 1205 Grattan (Special)

66448 Redevelopment plan—4557 Chouteau (Special)

66449 Vacation—east/west alley in city block 1143 (Special)

66450 Redevelopment plan—1819 Allen Ave. (Special)

66451 Redevelopment plan—4542 Page Ave. (Special)

66452 Redevelopment plan—3322 S. 9th St. (Special)

66453 Redevelopment plan—2829 Wisconsin Ave. and 2812 Salena Ave. (Special)

66454 Streets—temporarily closes Enright at Hamilton (Special)

66455 Redevelopment plan—4508 Arsenal St. (Special)

66456 Vacation—Broadway, Stadium Plaza and Walnut abutting city block 6466 (Special)

66457 Vacation—north/south alley of east/west alley in city block 5366 (Special)

66458 Redevelopment plan—3519 Illinois Ave. (Special)

66459 Redevelopment plan—3621 N. Newstead Ave. (Special)

66460 Vacation—Dickson Street from First to Lewis and north/south alley in city block 229 (Special)

66461 Vacation—Martin Luther King between 2nd and 3rd (Special)

66462 Vacation—north/south alley in city block 394 (Special)

66463 Vacation—north/south and east/west pedestrian pathways in city block 3863-E (Special)

66464 Vacation—north/south alley in city block 1316 (Special)

66465 Vacation—First St. south of Angelica to city blocks 1223 and 1224 (Special)

66466 Vacation—north/south alley in city block 3346 and McKissock from E. DeSoto to E. Prairie (Special)

66467 Vacation—Angelica from Hall to Wharf (Special)

66468 Vacation—Sullivan from 23rd St. to 25th St. and east/west alley in city block 1087-N (Special)

66469 Redevelopment plan—5317 Wilson Ave. (Special)

66470 Vacation—north/south alley and east/west alley in city block 2110 (Special)

66471 Redevelopment plan—2836 Accomac St. (Special)

66472 Redevelopment plan—2614, 2616, 2618, 2621, 2628, 2634, 2638, 2650 and 2652 Armand Place (Special)

66473 Redevelopment plan—316 N. Newstead Ave. (Special)

66474 Redevelopment plan—4008 Botanical Ave. (Special)

66475 Redevelopment plan—3257-59 California Ave. (Special)

66476 Redevelopment plan—4036-38 Oregon Ave. (Special)

66477 Redevelopment plan—3437 California Ave. (Special)

66478 Streets—designates 5500 block of Etzel as "Reverend Herbert L. Becton, Sr. Place" (Special)

66479 Vacation—east/west alley in city block 657 (Special)

66480 Grant—public safety for purchase of emergency responder equipment (Special)

66481 Federal Community Development Block Grant 2005, appropriating funds (Special)

66482 Communications division appropriation (Special)

66483 Redevelopment plan—6249-51 Southwood (Special)

66484 Redevelopment plan—2911 and 2915 Magnolia (Special)

66485 BPS—public works project for Dr. Martin Luther King, Fr. (Special)

66486 Redevelopment plan—4722 Olive and 4436 Westminster (Special)

66487 Streets—temporarily closes Randall at Penrose (Special)

66488 Repeals Ord. 66152 (Repealer)

66489 Airport—fourth amendment to master plan expansion (Special)

66490 Airport—concession agreement with U.S. Bank (Special)

66491 Airport—first amendment to lease with Trans States Airlines (Special)

66492 Bonds—sale of Forest Park leasehold refunding bonds (Special)

66493 Redevelopment plan—Adler Lofts redevelopment area (Special)

66494 Redevelopment plan—Adler Lofts, LLC (Special)

66495 Tax increment revenue notes—Adler Lofts (Special)

66496 Tax increment revenue notes—Paul Brown Redevelopment (Special)

66497 Redevelopment plan—2600 Chouteau Ave. (Special)

66498 Redevelopment plan—4140 Lindell Blvd. (Special)

66499 Redevelopment plan—Chouteau Ave./ 7th St./I-55 (Special)

66500 Redevelopment plan—2352 S 13th St. (Special)

66501 Redevelopment plan—1468-72 Clara Ave. 5561-97 Wells Ave. and 1469-75 Burd Ave. (Special)

66502 Redevelopment plan—N. Grand Blvd./ Dr. M.L. King Dr./Cozens Ave. (Special)

66503 Redevelopment plan—848-916 N. Kingshighway Blvd., 785-99 and 794-910 N. Euclid Ave. (Special)

66504 Redevelopment plan—3510 Dodier St. (Special)

66505 Redevelopment plan—3334 S. Kingshighway Blvd. and 4833 Fairview Ave. (Special)

66506 Redevelopment plan—2618 Pearl Ave. (Special)

66507 Amended redevelopment plan—Stadium South area (Special)

66508 Amended redevelopment plan—Stadium South area (Special)

66509 Voter proposition—procedures for financial assistance to sports facilities (3.91)

66510 Assessments—opt out of § 137.115(15) RSMO (Special)

66511 Repeals and replaces Ords. 64833, 64905, 64942, 64954 § 27, 65065, 65070, 65666, 65734 and 66230 [Ch. 4.16], city employee retirement system (4.16)

66512 Planned unit development—city blocks 4544 and 4545 for People's Health Centers Neighborhood Branch Planned Unit Development District (Special)

66513 Zoning—parcel in city block 6328 to "J" (Special)

66514 Zoning—parcels in city block 526 to "I" (Special)

66515 Grant—building commissioner with Missouri Department of Health and Senior Services for local lead/sanitation assessments for child care facilities (Special)

66516 Grant—department of public safety with U.S. Department of Justice for local family justice center initiative (Special)

66517 Zoning—parcel in city block 1252 to "H" (Special)

66518 Healthcare trust fund—appropriation to family violence fund for assisting victims of domestic violence and sexual abuse (Special)

66519 Redevelopment plan—3302-04 Lasalle (Special)

66520 Zoning—parcels in city block 340 to "J" (Special)

66521 Grant—fire commissioner with Missouri Department of Health and Senior Services for cardiovascular/diabetes follow-up (Special)

66522 Redevelopment plan—2854-58 Michigan Ave. and 2909 S. Compton Ave. (Special)

66523 Redevelopment plan—6521 Wise Ave. (Special)

66524 Redevelopment plan—2012 James St. (Special)

66525 Redevelopment plan—2101-09 Lynch St. (Special)

66526 Redevelopment plan—3516 Illinois Ave. (Special)

66527 Redevelopment plan—5153 Vernon Ave. (Special)

66528 Redevelopment plan—3968 Flad Ave. (Special)

66529 Redevelopment plan—4233 Castleman Ave. (Special)

66530 Redevelopment plan—2201 S. Grand Blvd. (Special)

66531 Redevelopment plan—4531 Washington Ave. (Special)

66532 Redevelopment plan—3830-32 Shenandoah Ave. (Special)

66533 Redevelopment plan—2123-25 Bremen Ave. (Special)

66534 Redevelopment plan—4122 Russell Ave. (Special)

66535 Redevelopment plan—Tower Grove South VI area (Special)

66536 Redevelopment plan—5229 Bischoff Ave. and 5123 Daggett Ave. (Special)

66537 Redevelopment plan—2827 S. 18th St. and 3010 Missouri Ave. (Special)

66538 Zoning—parcels in city block 938 to "I" (Special)

66539 Zoning—parcels in city block 2004 to "I" (Special)

66540 Planned unit development district—portion of city block 2141 to be known as the "Abbey on the Park Planned Unit Development District" (Special)

66541 Planned unit development district—portion of city block 1805 to be known as the "Mississippi Place Planned Unit Development District" (Special)

66542 Redevelopment plan—2704 Louisiana Ave. (Special)

66543 Redevelopment plan—3103-05 Magnolia Ave. (Special)

66544 Redevelopment plan—2643-51 Chouteau Ave. (Special)

66545 Redevelopment plan—3240 Lafayette Ave. (Special)

66546 Redevelopment plan—3883 Humphrey St. (Special)

66547 Redevelopment plan—2840-42 Indiana Ave. (Special)

66548 Redevelopment plan—1931-33 Withnell Ave. (Special)

66549 Redevelopment plan—3014 Lemp Ave. and 3218 Missouri Ave. (Special)

66550 Redevelopment plan—2425 Salena St. (Special)

66551 Redevelopment plan—3416 Humphrey St. (Special)

66552 Redevelopment plan—4300-04, 4307 and 4337-39 John Ave., 3727 Carter Ave. and 3724-28 W. Florissant Ave. (Special)

66553 Redevelopment plan—1300 Convention Plaza (Special)

66554 Redevelopment plan—Marquette Building (Special)

66555 Affirms adoption of redevelopment plan, redevelopment area and redevelopment project; authorizes execution of redevelopment agreement between city and TLG Marquette, LLC (Special)

66556 Designates portion of city as redevelopment area known as "1136 Washington Redevelopment Area" (Special)

66557 Affirms adoption of redevelopment plan, redevelopment area, redevelopment project; authorizes execution of redevelopment agreement between city and AD Brown Acquisition Corp., LLC (Special)

66558 Designates portion of city as redevelopment area known as "Washington East Condominiums Redevelopment" (Special)

66559 Affirms adoption of redevelopment plan, redevelopment area, redevelopment project with Convention Plaza Apartments, LLC (Special)

66560 Designates portion of city as redevelopment area known as "Bottle District Redevelopment" (Special)

66561 Designates portion of redevelopment area known as "Mississippi Place Redevelopment Area" (Special)

66562 Affirms adoption of redevelopment plan, redevelopment area, redevelopment project with Gilded Age Renovation, LLC (Special)

66563 Designates portion of redevelopment area known as "Automobile Row Redevelop-ment Area" (Special)

66564 Affirms adoption of redevelopment plan with Integration LLC (Special)

66565 Designates portion of city as redevelopment area known as "Gaslight Square East Redevelopment Area" (Special)

66566 Affirms adoption of redevelopment plan, redevelopment area, redevelopment project with Gaslight Square Place III, LLC (Special)

66567 Vacation—Belt Ave. at Waterman to alley in city block 3877 (Special)

66568 Planned unit development—city block 5074 for Lehman Properties Dogtown Development (Special)

66569 Vacation—east/west alley in city block 4962 (Special)

66570 Real property—lease to Five Star Ready-Mix Concrete in city blocks 2 and 289 (Special)

66571 Zoning—several parcels in city block 482.03 to "F" (Special)

66572 Zoning—parcel in city block 2261.04 to "F" (Special)

66573 Zoning—several parcels in city block 4580.06 to "A" (Special)

66574 Zoning—several parcels in city blocks 3911 and 4876 to "C" (Special)

66575 Zoning—several parcels in city block 2110 to "H" (Special)

66576 Zoning—several parcels in city block 3786 to "F" (Special)

66577 Tax increment revenue notes—Marquette Building (Repealed by 67707)

66578 Tax increment revenue notes—1136 Washington Redevelopment (Repealed by 67708)

66579 Planned unit development district—city block 6401 for Cascade Planned Development District (Special)

66580 Tax increment revenue notes—1300 Convention Plaza (Special)

66581 Tax increment revenue notes—Mississippi Place Redevelopment (Special)

66582 Vacation—Eads Ave. from Theresa to Louisiana and Theresa from Eads to Henrietta (Special)

66583 Vacation—Ranken from Rutger to Hickory and east/west alley in city block 2164 (Special)

66584 Planned unit development district—city block 4624.02 for "Dogtown Walk II Planned Unit Development District" (Special)

66585 Tax increment revenue notes—Automobile Row RPA 1 Project (Special)

66586 Tax increment revenue notes—Automobile Row RPA 2 Project (Special)

66587 Tax increment revenue notes—Gaslight Square East Redevelopment (Special)

66588 Streets—honorarily designates 4900 block of Theodore as "Henry Townsend Place" (Special)

66589 Streets—stop sites on Wabada and Highland between Kingshighway and Union (Special)

66590 Blighting plan for South Broadway/ Spruce/ South Third/Poplar (Special)

66591 Amends § 17.76.020, parking for disabled persons (17.76.020)

66592 Redevelopment plan—W. Steins, E. Steins, S. Broadway (Special)

66593 Redevelopment plan—720 Koeln and 7503-05 Alabama (Special)

66594 Grant—with Missouri Foundation of Health for TB nurse (Special)

66595 Repeals and replaces § 10.04.220, dogs and cats (10.04.220)

66596 Redevelopment plan—5626-54, 5724-42, 5762 and 5629-5725 Cote Brillante (Special)

66597 Excise—prohibits package or drink licenses in twenty-fourth ward (Special)

66598 Redevelopment plan—I-70 and Goodfellow area (Special)

66599 Streets—temporarily closes Raymond at Union (Special)

66600 Airport—concession agreement with Airport Baggage Cart Rental and Electronic Locker Rental (Special)

66601 Airport—concession agreement with Two Of A Kind, LLC (Special)

66602 Streets—honorarily designates 7th at Dr. Martin Luther King as "Jerry Clinton Drive" (Special)

66603 Streets—honorarily designates Natural Bridge at Taylor as "Oliver Sain Place" (Special)

66604 Zoning—parcel in city block 5100 to "F" (Special)

66605 Planned unit development district—city block 4058.18 known as "Sublette Fields Subdivision PUD" (Special)

66606 Planned unit development district—city block 4624.01 known as "Glades Corner Subdivision PUD" (Special)

66607 Zoning—parcels in city block 4350 to "H" (Special)

66608 Zoning—parcels in city blocks 1950, 1956 and 2226 to "H" (Special)

66609 Repeals and replaces Exh. A. of Ord. 64832, preservation review districts (Special)

66610 Airport—real estate sale with Joseph J. Jasso (Special)

66611 Airport—second amendment to Airfield Projects Public Works (Special)

66612 Airport—amendment to Building Projects Public Works (Special)

66613 Airport—increases cost for public work and improvement (Special)

66614 Vacation—O'Fallon from Lewis to Wharf (Special)

66615 Repeals and replaces Ords. 60826, 61713, 62610, 62682, 65031 and 69532 [Ch. 25.04], uniform plumbing code (25.04)

66616 Vacation—Baldwin from Montgomery to city blocks 1897 and 2367 and Montgomery from Baldwin to city block 1897 and alley in city block 1897 (Special)

66617 Vacation—McNulty from 18th to Vail Place (Special)

66618 Vacation—alley from Caroline to alley in city block 1819 (Special)

66619 Grant—with U.S. Environmental Protection Agency for Columbia Bottoms Well Field Development (Special)

66620 Real property—sale of property in city block 5098 to Western Continental Investment (Special)

66621 Streets—temporarily closes O'Fallon at 13th St. and O'Fallon at 14th St. (Special)

66622 Streets—temporarily closes alley in city block 3837 at Hamilton (Special)

66623 Excise—prohibit package or drink license in Third Ward (Special)

66624 50/50 Sidewalk Program (Special)

66625 Real property—lease mooring rights between Lesperance and Lafayette to Eagle Marine Industries (Special)

66626 Real property—lease two parcels to Trailnet (Special)

66627 Vacation—North Market from Hadley to 11th St. (Special)

66628 Redevelopment plan—2207 Marconi (Special)

66629 Redevelopment plan—1917-19 Congress (Special)

66630 Redevelopment plan—2038-42, 2732 Geyer and 2115 Victor (Special)

66631 Redevelopment plan—4627, 4629, 4631 and 4637 Evans (Special)

66632 Redevelopment plan—Malone Manor (Special)

66633 Redevelopment plan—4300-48 Forest Park, 201-35 Boyle and 4301-15 Duncan (Special)

66634 Redevelopment plan—5061 Washington (Special)

66635 Residence Inn Downtown St. Louis Community District (Special)

66636 Redevelopment plan—3553 S. Spring (Special)

66637 Redevelopment plan—5123 Waterman (Special)

66638 Redevelopment plan—4337 Bates (Special)

66639 Redevelopment plan—1113-21 Locust (Special)

66640 Redevelopment plan—2809-13 Shenandoah (Special)

66641 Zoning parcels in city blocks 3026 and 3030 to "H" (Special)

66642 Redevelopment plan—2605 Nebraska (Special)

66643 Redevelopment plan—2223 Locust and 2226 Washington (Special)

66644 Redevelopment plan—Bell/School/N. Compton/Delmar/N. Theresa (Special)

66645 Redevelopment plan—5918 Garesche (Special)

66646 Redevelopment plan—Murphy Blair III Area (Special)

66647 Redevelopment plan—Lafayette Town Family and Elderly Apartments (Special)

66648 Bond financing—Cervantes Convention Center (Special)

66649 Redevelopment plan—JVL 16 Apartments (Special)

66650 Redevelopment plan—3519 Palm (Special)

66651 Grant—lead hazard reduction demonstration (Special)

66652 Redevelopment plan and agreement—Dogtown Walk II, LLC (Special)

66653 Vacation—north/south alley city block 453 (Special)

66654 Streets—temporarily closes Rutger at California and South Compton and Hickory at South Compton (Special)

66655 Adds § 8.108A.235; amends § 2 of Ord. 65061 [8.108A.010], vendors (8.108A.010, 8.108A.235)

66656 Redevelopment area—Dogtown Walk II Redevelopment (Special)

66657 Redevelopment area—East Bank Lofts TIF Redevelopment (Special)

66658 Redevelopment plan, area and project agreement—CHD Design Development (Special)

66659 Redevelopment area—5700 Arsenal (Special)

66660 Note purchase—with city, 1501 Locust Partners and U.S. Bank; amends Ord. 65909 (Special)

66661 Vacation—north/south alley and east/west alley in city block 565 (Special)

66662 Redevelopment plan—3960 Lindell (Special)

66663 Development agreement and transportation development district—with Dominion Hospitality-Jefferson LLC (Special)

66664 Redevelopment area—I-55/ Loughborough (Special)

66665 Zoning—parcel in city block 944 to "I" (Special)

66666 Tax increment revenue notes—Washington East Condominiums (Special)

66667 Redevelopment plan—4901-09 Delmar/ 701-35 N. Euclid/4900-20 Enright (Special)

66668 Redevelopment plan, agreement and project—5700 Property (Special)

66669 Tax increment revenue notes—5700 Arsenal (Repealed by 67674)

66670 Redevelopment plan, agreement and project—Loughborough Commons (Special)

66671 Redevelopment plan—3906, 3958-60, 4018 and 4034-40 Detonty, 3900 Shaw and 1818 Lawrence (Special)

66672 Lafayette Square Townhouses Community Improvement District (Special)

66673 Tax increment revenue notes—I-55/ Loughborough Redevelopment (Special)

66674 Tax increment revenue notes—Bottle District Redevelopment (Special)

66675 Redevelopment plan, agreement and project—1001 Washington, LLC and 1007/1015 Washington, LLC (Special)

66676 Tax increment revenue notes—Dogtown Walk II Redevelopment (Special)

66677 Tax increment revenue notes—East Bank Lofts Redevelopment (Special)

66678 Redevelopment plan—Tiffany Apartments (Special)

66679 Redevelopment plan, agreement and project—BDP, LLC (Special)

66680 Real property—sale to Nestle Purina in city block 420 (Special)

66681 Planned unit development district—Clifton Heights Townhomes, city block 4794 (Special)

66682 Redevelopment plan—1287-93 Amherst, 1264-92 Hodiamont and 5975-89 Julian (Special)

66683 Vacation—east/west alley and north/ south alley in city block 482-E (Special)

66684 Redevelopment area—pet building redevelopment area (Special)

66685 Budget (Special)

66686 Public Safety General Obligation Refunding Bonds Series 2005 (Special)

66687 Grant—fire department for homeland security (Special)

66688 Grant—public safety for emergency responder equipment (Special)

66689 Grant—health department for lead safe program (Special)

66690 Excise—prohibition of new licenses in Twentieth Ward (Special)

66691 Conflicts of interest (4.07)

66692 Motorcycles and motorized bicycles (17.02.300, 17.02.315, 17.18)

66693 Neighborhood Orders of Protection (15.13)

66694 Airport—Fifth Supplemental Appropriation (Special)

66695 Parking Commission—operating expenses of Parking Division (Special)

66696 Streets—closing of Raymond at Hodiamont—amends 66599 (Special)

66697 Streets—closing Etzel at Blackstone—repeals 66249 (Special)

66698 Streets—various closings in Third Ward (Special)

66699 Unattended child in vehicles (15.129)

66700 Airport—Revenue Refunding Bonds, Series 2005 (Special)

66701 Borrowing of funds (Special)

66702 Airport—concessions for automatic teller machines (Special)

66703 Headlights on motor vehicles (17.32.070)

66704 Housing conservation—Ward 7 include additional property (Repealed by 67914)

66705 Zoning—parcel in city block 1862 to "G" Local Commercial and Office District (Special)

66706 Zoning—parcel in city block 3904 to "J" Industrial District (Special)

66707 Zoning—parcels in city block 3919.03 to "G" Local Commercial and Office District (Special)

66708 Zoning—parcel in city block 4016 to "F" Neighborhood Commercial District (Special)

66709 Zoning—parcel in city block 918 to "I" Central Business District (Special)

66710 Zoning—parcels in city blocks 930 and 931 to "I" Central Business District (Special)

66711 Zoning—parcels in city blocks 918, 2009 and 2012 to "I" Central Business District (Special)

66712 Zoning—parcels in city blocks 935 and 2010 to "I" Central Business District (Special)

66713 Zoning—parcels in city blocks 3922 and 5035 to "H" Area Commercial District (Special)

66714 Zoning—parcel in city block 524 to "I" Central Business District (Special)

66715 Zoning—parcel in city block 3852.06 to "G" Local Commercial and Office District (Special)

66716 Streets—two-way stop at Morganford and Juniata (Special)

66717 Streets—restoring the name "Kings Estates" repealed Ordinance 65860 (Special)

66718 Redevelopment plan—2902 Wisconsin and 3235 Indiana (Special)

66719 Redevelopment plan—900-902 Utah Street and 3306 & 3312 S. 9th St. (Special)

66720 Redevelopment plan—2000-2010 S. 8th St. (Special)

66721 Redevelopment plan—3133 Shenandoah Ave. (Special)

66722 Redevelopment plan—2703 Russell Blvd. (Special)

66723 Redevelopment plan—2642 Ann Ave., 2256 Missouri Ave. & 2330 Menard St. (Special)

66724 Redevelopment Plan for 2637 & 2706 Allen Ave. (Special)

66725 Redevelopment Plan—2244 S. Jefferson Ave. (Special)

66726 Redevelopment Plan—3801 Connecticut St. and 3844 Humphrey St. (Special)

66727 Redevelopment Plan—3700 Potomac St. (Special)

66728 Redevelopment Plan—3510-12 Utah St. (Special)

66729 Redevelopment Plan—2626, 2632 & 2634 Wyoming St. (Special)

66730 Redevelopment Plan—2746 Wyoming St., 2740 Miami St. & 2918 Cherokee St. (Special)

66731 Redevelopment Plan—2706 Wyoming St. (Special)

66732 Redevelopment Plan—2301-45 and 2304-6 Hebert St. (Special)

66733 Redevelopment Plan—1735 Delmar Blvd. (Special)

66734 Redevelopment Plan—700 Carr St./ Cochran Gardens Area (Special)

66735 Redevelopment Plan—615 S. Vandeventer Ave. (Special)

66736 Redevelopment Plan—6600-12 & 6615 Minnesota Ave. and 6601-09 Pennsylvania (Special)

66737 Redevelopment Plan—4048 Shaw Blvd., 3636 Botanical Ave. & 3636-38 Shenandoah Ave. (Special)

66738 Redevelopment Plan—5358 Southwest Ave. & 2712 January Ave. (Special)

66739 Amendment to Redevelopment Agreement by and between the City and WRT Highlands Hotel, LLC (Special)

66740 Amended redevelopment plan—300 N. Tucker Blvd. blighted by Ordinance 64608 (Special)

66741 Pay plan—Circuit Attorney (4.48)

66742 Pay plan—Sheriff (4.36)

66743 Zoning—parcels in city block 5136 to "D" Multiple Dwelling District (Special)

66744 Redevelopment plan—3134-36 Shenandoah (Special)

66745 Clinic leases (Special)

66746 Redevelopment plan—3429 Hartford St. (Special)

66747 Redevelopment plan—3317 Magnolia Ave. (Special)

66748 Redevelopment plan—2009-23 Chouteau Ave. (Special)

66749 Redevelopment plan—1556 & 1560 Kraft St. & 1565 Fairmont Ave. (Special)

66750 Redevelopment plan—1423-43 Hodiamont Ave. & 6113 Ridge Ave. (Special)

66751 Planned Unit Development Plan—city block 1256 "Carroll Street Condominiums"

66752 Redevelopment Agreement by and between the City and Adler Lofts, LLC (Special)

66753 Redevelopment Area known as the 2300 Locust Street Redevelopment (Special)

66754 Redevelopment Agreement between the City and NSI Ventures, LLC (Special)

66755 Tax increment revenue notes—2300 Locust Street Redevelopment

66756 Leasehold Revenue Bonds—Kiel center facilities (Special)

66757 Airport—grant for aircraft rescue and fire fighting equipment (Special)

66758 Airport—grant for noise mitigation (Special)

66759 Airport—grant for noise mitigation (Special)

66760 City Public Transit Sales Tax Fund (Special)

66761 Transportation Trust Fund appropriation to Bi-State (Special)

66762 Downtown Parks Business District—dissolution (Special)

66763 Excise—prohibition of package and drink licenses in Second Ward (Special)

66764 Excise—prohibition of package and drink licenses in Twenty-Seventh Ward (Special)

66765 Redevelopment plan—2336-38 Menard (Special)

66766 Voter proposition—Locust Central Business District tax-voter approval 11-8-05 (Special)

66767 Locust Central Business District—tax assessment

66768 Forest Park—Second Amendment to Lease to Forest Park Forever (Special)

66769 Grant—removal and replacement of concrete sidewalks (Special)

66770 Parks—Agreement with Downtown St. Louis Improvement District (Special)

66771 Bonds—for City Justice Center Leasehold (Special)

66772 Entertainment tax—boxing matches (8.08.015)

66773 Excise—prohibition of package and drink licenses for Twenty-Fourth Ward (Special)

66774 Gaslight Square Community Improvement District—special assessments (Special)

66775 Pinnacle Development Site—access road (Special)

66776 Bond issue—radio systems—voter approval 11-8-05 (Special)

66777 Groundwater—prohibition of wells (11.81)

66778 Real property—easement to utilities in city block 4241 (Special)

66779 Streets—closing of Agnes at 20th Street (Special)

66780 Streets—two way stop at 20th and Madison Street (Special)

66781 Laclede Place Residential Parking District (Special)

66782 Zoning—parcels in city blocks 3896, 4577 and 5208 (Special)

66783 Unified Certification Program authorization (Special)

66784 Vista Avenue Residential Parking District (Special)

66785 Streets—closing various streets in Ninth, Twentieth and Fifteen Wards (Special)

66786 International Energy Conservation Code (25.13)

66787 International Property Maintenance Code (25.32)

66788 International Existing Building Code (25.20)

66789 International Residential Code (25.11)

66790 International Building Code (25.01)

66791 Redevelopment Plan for 2701 S. Jefferson Ave. (Special)

66792 Redevelopment Plan for 3501 Lemp Ave. (Special)

66793 Redevelopment Plan for Chouteau's Landing (Special)

66794 Redevelopment Plan for 3892 Connecticut St. and 4147 Juaniata St. (Special)

66795 Redevelopment Plan for the Vandeventer/Finney/Washington/Taylor Area (Special)

66796 Redevelopment Plan for 5070 Waterman Blvd. (Special)

66797 Bi-State Development Agency—First Amendment to Memorandum (Special)

66798 Redevelopment Plan for 1845-49 Russell Blvd. (Special)

66799 Streets—designation of Leonard Street to "Kim's Kids Way" (Special)

66800 Redevelopment Plan for 3612 Nebraska Ave. (Special)

66801 Laclede's Landing Community District establishment (Special)

66802 Redevelopment Plan for 6903 Mitchell Ave. & 6900R & 6904R Plateau Ave. (Special)

66803 Redevelopment Plan for 6838-54 Glades Ave./2000-2008 Forest Ave. (Special)

66804 Redevelopment Plan for 1557, 1558, 1561 Fairmount Ave., 1600, 1606, 1612, 1616 Prather Ave. & 6279 Famous Ave. (Special)

66805 Vacation—Third Street from Martin Luther King to Carr Street (Special)

66806 Streets—revises legal description of Martin Luther King, amends 66461 (Special)

66807 Redevelopment Plan for 2914, 2916-18 and 3008-10 S. Compton Ave. area (Special)

66808 Redevelopment Plan for 2808 & 2864 McNair Ave., 3303 S. 18th St. & 3335 Illinois Ave. (Special)

66809 Vacation—alleys in city blocks 1251 and 1250 (Special)

66810 Vacation—Sublette and Reber (Special)

66811 Vacation—Berthold, East Road, Brother Thornton Way, Wise, alleys in city blocks 3966, 5592, and 3996 (Special)

66812 Redevelopment Plan for I-70 and Goodfellow Area, 4800-50 Goodfellow Blvd. (Special)

66813 Redevelopment Plan for Moon Bros. Carriage Lofts Redevelopment area. (Special)

66814 Vacation—north/south alley in city block 2609 (Special)

66815 2017 Chouteau Community Improvement District—approval of petition (Special)

66816 Affirming that the area blighted by Ordinance 62800 known as the Blair/Clinton is a blighted area (Special)

66817 Vacation—east/west alley in city block 1143 (Special)

66818 Redevelopment Plan for 7000-42 Mardel Ave., 7001-41 Lindenwood Ave., & 3815 McCausland Ave. (Special)

66819 Redevelopment Plan for 3130-32 Nebraska Ave. (Special)

66820 Redevelopment Plan for 2017 Arsenal St. (Special)

66821 Scullin Redevelopment Area—approving amendment to Tax Increment Blighting analysis (Special)

66822 Redevelopment Plan for Switzer Building Redevelopment Area (Special)

66823 Redevelopment Plan authorizing the execution of a Redevelopment Agreement between the City and Clarinet LLC (Special)

66824 Switzer Building Redevelopment—issuance of tax increment revenue notes (Special)

66825 Redevelopment Plan authorizing the execution of a Redevelopment Agreement between the City and Moon Brothers, LLC (Special)

66826 Moon Bros. Carriage Loft—issuance of tax increment revenue notes (Special)

66827 Redevelopment Area known as 1635 Washington (Special)

66828 Redevelopment Plan, Redevelopment Agreement between the City and 1641 Washington, LLC

66829 1635 Washington Redevelopment—issuance of tax increment revenue notes (Special)

66830 Redevelopment Plan for 3949 Lindell (Special)

66831 Redevelopment Plan, Redevelopment Agreement between the City and HSAD 3949 Lindell, LTD

66832 3949 Lindell Redevelopment—issuance of tax increment revenue notes (Special)

66833 Redevelopment Area known as the Ely Walker Lofts (Special)

66834 Redevelopment Plan, Redevelopment Agreement between the City and Orchard Development Group III, LLC (Special)

66835 Ely Walker Lofts Redevelopment—issuance of tax increment revenue notes (Special)

66836 Redevelopment Area known as the West Town Lofts (Special)

66837 Redevelopment Plan, Redevelopment Agreement between the City and KN&C, LLC (Special)

66838 West Town Lofts Redevelopment—issuance of tax increment revenue notes (Special)

66839 Redevelopment Area known as the Southside National Bank Building (Special)

66840 Redevelopment Plan, Redevelopment Agreement between the City and Southside National LLC (Special)

66841 Southside National Bank Redevelopment—issuance of tax increment revenue notes (Special)

66842 Redevelopment Area known as the Packard Lofts (Special)

66843 Redevelopment Plan, Redevelopment Agreement between the City and Packard Lofts LLC (Special)

66844 Packard Lofts Redevelopment—issuance of tax increment revenue notes (Special)

66845 Streets—honorarily designate 7th Street as "Dick Weber Lane" (Special)

66846 Redevelopment Agreement by and between the City and Ad Brown Acquisition LLC (Special)

66847 Blighted City Blocks 3904, 3917, 3918W, 3919W, 3953, 3959, 3960, 3961, 3962, 3963, 3966 (N and S), 3967 (N and S), 3968 (N and S), 3971 (N and S), 4586 and 4589 (Special)

66848 Redevelopment Plan, Redevelopment Agreement between the City and Balke Brown Associates, Inc. (Special)

66849 Redevelopment Plan, Redevelopment Agreement between the City and BHAT Development LLC (Special)

66850 Redevelopment Area known as the Bee Hat Redevelopment Area (Special)

66851 1021 Washington Plan—issuance of tax increment revenue notes (Repealed by 67704)

66852 Airport—grant for rehabilitation of taxiway (Special)

66853 Airport—grant for rehabilitation of Taxiway N.NW (Special)

66854 Airport—grant for aircraft rescue and fire fighting (Special)

66855 Airport—ground transportation fees (Special)

66856 Fire Department—grant for operations and safety program (Special)

66857 Building violations—administrative fines (25.33)

66858 Zoning—parcels in city block 935 to "I" Central Business District (Special)

66859 Building Code—securing of buildings without occupancy permit (SECTION FOUR of 66790)

66860 Downtown Vending District (8.108A)

66861 Public Works—South Seventh Streetscape (Special)

66862 Block Grant (Special)

66863 Tax Increment Revenue—Cupples Station (Special)

66864 Redevelopment plan—721 Olive (Special)

66865 Redevelopment plan—7001-27, 7024 Pennsylvania, 210 Quincy and 210 Blow (Special)

66866 Redevelopment plan—1601 Olive (Special)

66867 Redevelopment plan—600 N. Kingshighway/4953-71 Washington (Special)

66868 Automatic Traffic Control Systems (17.07)

66869 Zoning—parcels in city block to "G" Local Commercial (Special)

66870 Airport—multi-year public works and improvement program (Special)

66871 Intergovernmental agreement—Pinnacle (Special)

66872 Redevelopment plan—2629-31 and 2641-43 Wyoming (Special)

66873 Redevelopment plan—3311-13 S. 18th and 2920 Salena (Special)

66874 Redevelopment plan—3013015 Salena (Special)

66875 Redevelopment plan—3152 Texas (Special)

66876 Redevelopment plan—3449-51 Indiana and 3509 Missouri (Special)

66877 Redevelopment plan—3329 S. 18th Street (Special)

66878 Redevelopment plan—3407 Cherokee (Special)

66879 Redevelopment plan—2624 Accomac (Special)

66880 Redevelopment plan—2005-07 Victor (Special)

66881 Redevelopment plan—2207 Menard and 2410 S. 11th Street (Special)

66882 Redevelopment plan—3955 Botanical (Special)

66883 Redevelopment plan—5223 Vernon (Special)

66884 Redevelopment plan—2143 Geyer (Special)

66885 Redevelopment plan—2219-25 Menard (Special)

66886 Redevelopment plan—2238 Jules (Special)

66887 Redevelopment plan—1323 Lami (Special)

66888 Redevelopment plan—2856 Russell (Special)

66889 Redevelopment plan—3405-07 S. Spring (Special)

66890 Redevelopment plan—3633-39 Tennessee (Special)

66891 Redevelopment plan—3710 Utah (Special)

66892 Redevelopment plan—3927 Hartford (Special)

66893 Redevelopment plan—3432 Texas (Special)

66894 Redevelopment plan—3322 Lemp (Special)

66895 Redevelopment plan—2717-19 McNair (Special)

66896 Redevelopment plan—2503 Minnesota (Special)

66897 Redevelopment plan—2650-54 Locust (Special)

66898 Redevelopment plan—3406 Osage (Special)

66899 Redevelopment plan—4759 Michigan (Special)

66900 Redevelopment plan—5941 Southwest (Special)

66901 Redevelopment plan—5119 Pattison (Special)

66902 Redevelopment plan—4629-33 Westminister (Special)

66903 Redevelopment plan—4231 Castleman (Special)

66904 Redevelopment plan—3800-16 Shenandoah (Special)

66905 Redevelopment plan—6400-16 Wise (Special)

66906 Blighting—affirming Blair/Clinton Area (Special)

66907 Redevelopment plan—2839 Olive and 2826 Locust (Special)

66908 Redevelopment plan—3301-11 Chouteau (Special)

66909 Redevelopment plan—2865 Arlington (Special)

66910 Redevelopment plan—3667 and 3671 McRee (Special)

66911 Voter proposition—filling vacancies within Civil Service (Charter Art. XVIII § 3(e))

66912 Voter proposition—certification of eligible candidates (Charter Art. XVIII § 3(d), (g))

66913 Voter proposition—"excepted positions" (Charter Art. XVIII § 1(h))

66914 Streets—closing East 14th by Cass (Special)

66915 Streets—closing Olive at Whittier (Special)

66916 Streets—closing of Agnes at 21st—see Ordinance 66779 (Special)

66917 Real property—easement with MSD—city blocks 2832, 2889 and 2919 (Special)

66918 Real property—subterranean easement with MSD—city block 2832 (Special)

66919 Southtown Transportation Development District—redevelopment agreement amendment (Special)

66920 Real property—easement with MSD—city blocks 4119, 4651 and 4784E (Special)

66921 Parking—loading zones, amends Ordinance 61186 (17.24.070)

66922 Streets—closing of McCausland, Chippewa, Plainview and Jamieson (Special)

66923 Redevelopment plan—4012, 4015, 4016, 4018, 4019, 4022, 4025, 4030, 4036, 4044, 4050 and 4054 Lincoln (Special)

66924 Vacation—Blow from Grand to railroad right-of-way (Special)

66925 Restated development agreement—Dominion Hospitality-Jefferson, L.L.C. (Special)

66926 Airport—lease for any airline operator (Special)

66927 Airport—lease with Lambert Field Fueling Facilities Corporation (Special)

66928 Blighting—land in block 3882 (Special)

66929 Redevelopment plan—Kingsdell Redevelopment Area (Special)

66930 Vacation—north/south alley and east/west alley in city block 944 (Special)

66931 Vacation—north side of Maryland Plaza in city block 3881 (Special)

66932 Real property—sale to Thomas A. Fortenberry 3623 Blaine in city block 2124 (Special)

66933 Zoning—parcel in city block 3801.03 to "F" Neighborhood Commercial (Special)

66934 Graffiti prohibition (15.77)

66935 Port—lease with Material Sales (Special)

66936 Zoning—parcel in city block 4074 to "F" Neighborhood Commercial (Special)

66937 Zoning—parcel in city block 5616 to "F" Neighborhood Commercial (Special)

66938 Zoning—parcel in city block 3094 to "F" Neighborhood Commercial (Special)

66939 Zoning—parcels in downtown area to "I" Central Business District (Special)

66940 Voter proposition—increase fines Article IV, Section 24 Charter

66941 Special use districts—regulations (26.73)

66942 Community Improvement District—Shenandoah Place Community Improvement (Special)

66943 Planned Unit Development District—city block 4614 "Dogtown View Planned Unit Development District" (Special)

66944 Redevelopment Plan—110 E. Grand Blvd. (Special)

66945 Redevelopment Plan—4202 Folsom (Special)

66946 Redevelopment Plan—2555-57, 2707 and 2711 N. Grand (Special)

66947 Redevelopment plan—4910 Manchester (Special)

66948 Redevelopment plan—205 E. Davis (Special)

66949 Redevelopment plan—2803-33 Chouteau and 2832 Papin (Special)

66950 Redevelopment plan—2905 Victor (Special)

66951 Redevelopment plan—5531 Louisiana (Special)

66952 Redevelopment plan—3833 and 4252 Shenandoah (Special)

66953 Redevelopment plan— 2924 Salena (Special)

66954 Redevelopment plan—2800 hundred block Texas (Special)

66955 Redevelopment plan—4310 Oregon (Special)

66956 Lindell Blvd.—repeals Ordinances 35199 and 38911—setbacks (Special)

66957 Redevelopment plan—3238 Portis (Special)

66958 Redevelopment plan—5216 Elizabeth (Special)

66959 Redevelopment plan—5561 Elizabeth (Special)

66960 Redevelopment plan—4412-26 W. Florissant (Special)

66961 Redevelopment plan—2647-49 Wyoming and 1927 Lynch (Special)

66962 Redevelopment plan—1916 Provenchere Place (Special)

66963 Redevelopment plan—4357 College (Special)

66964 Redevelopment plan—amendment for Mansion House Center blighted by Ordinance 61441 (Special)

66965 Treasurer—lease/purchase with ACLU in city block 3892 (Special)

66966 Redevelopment plan—5108-5200 S. Broadway (Special)

66967 Redevelopment area designation—Lindell Condominiums (Special)

66968 Redevelopment Area—5819 Delmar Redevelopment Area (Special)

66969 Redevelopment Area—Delmar East Loop (Special)

66970 Redevelopment Area—6175-81 Delmar (Special)

66971 Redevelopment Area—Delmar Loop Center (Special)

66972 Redevelopment Agreement—Gilded Age Renovation (Special)

66973 Tax Increment Revenue Notes—1501 Missouri TIF Redevelopment Project (Special)

66974 Change in recall procedures—Section 9 of Article III (voter rejection April 4, 2006—Special)

66975 Redevelopment Area—Syndicate Trust (Special)

66976 Voter proposition—increase graduated business license tax (Voter rejection April 4, 2006)

66977 Housing Conservation District—First Ward (Repealed by 67914)

66978 Redevelopment plan—North Florissant/ Destrehan/N.20th/Bremen (Special)

66979 Redevelopment plan—620 Market (Special)

66980 Redevelopment plan—Hampton/ Wilson—repealed Ord. 66233 (Special)

66981 Redevelopment plan—700 Market (Special)

66982 Planned Unit Development District—Mississippi Bluffs (Special)

66983 Planned Unit Development District—Park East Lofts (Special)

66984 Planned Unit Development District—Magnolia Square (Special)

66985 Redevelopment Area—CORTEX (Special)

66986 Excavation and Construction Noise (15.50.080)

66987 Zoning—parcel in city block 387.05 to "F" (Special)

66988 Buder Park—curfew (22.18.026)

66989 Public Works—Delmar Median Streetscape (Special)

66990 Public works—Spring Avenue Bridge (Special)

66991 Emergency vehicles—right-of-way (17.14.050)

66992 Streets—two way stop at Maple Avenue and Maple Place (Special)

66993 Real estate signs (15.157)

66994 Redevelopment plan—2201-11 S. Jefferson (Special)

66995 Redevelopment plan—2117 Allen and 1224-28 & 2141 Geyer (Special)

66996 Redevelopment plan—Rutger/Miller/ Broadway/2nd (Special)

66997 Redevelopment plan—3962 Juniata (Special)

66998 Redevelopment plan—4217 Russell (Special)

66999 Redevelopment plan—4378-92 Olive (Special)

67000 Redevelopment plan—2618-42 & 2652-54 Lafayette (Special)

67001 Vacation—north/south alley in City block 1605 (Special)

67002 Noise (15.50.030)

67003 50/50 Sidewalk Program (Special)

67004 Streets—temporarily close Henner at Bircher (Special)

67005 Fire Department—grant for thermal imaging (Special)

67006 Public Safety—grant for Homeland Security Response Team (Special)

67007 Redevelopment plan—3345 Pennsylvania (Special)

67008 Redevelopment plan—2831 Cherokee Street (Special)

67009 Redevelopment plan—4941-71, 4958-64 Davison & 4952-58 Beacon (Special)

67010 Redevelopment plan—6321 Arthur (Special)

67011 Preservation District—District 20, amends 66609 (Special)

67012 Streets—temporary closing of McClausland at Chippewa, repeals 66922 (Special)

67013 Redevelopment plan—Vandeventer/ Finney/ Taylor/Washington blighted by Ordinance 66795 (Special)

67014 Redevelopment plan—6000 Natural Bridge (Special)

67015 Redevelopment plan—N. Magnolia/ Pearl/ S. Magnolia, January (Special)

67016 Redevelopment plan—3449 Arsenal (Special)

67017 Redevelopment plan—1220 Mackay Place (Special)

67018 Redevelopment plan—2639 Nebraska (Special)

67019 Redevelopment plan—3004 Virginia (Special)

67020 Redevelopment plan—1701 Macklind (Special)

67021 TIF—Warehouse of Fixtures—repealed Ordinance 66427 (Special)

67022 Redevelopment Agreement—UVA Development Company for Warehouse of Fixtures (Special)

67023 Redevelopment plan—3877 Humphrey and 3832 Juniata (Special)

67024 Redevelopment plan—2912 Salena, 2125 Utah, 2801 Indiana, and 2310 Lynch (Special)

67025 Redevelopment plan—4138 Shaw (Special)

67026 Redevelopment plan—5828 Westminister (Special)

67027 Redevelopment plan—North 19th/ Herder/Blair/Buchanan (Special)

67028 Redevelopment plan—Fox Park/ McKinley Heights (Special)

67029 Enhanced Enterprise Zone Board—establishment (3.81)

67030 Vacation—north/south alley in city block 2089 (Special)

67031 Redevelopment plan—3957 Shaw (Special)

67032 Redevelopment plan—3844-50 Park (Special)

67033 Redevelopment plan—4448 Gibson (Special)

67034 Redevelopment plan—Forest Park Southeast II (Special)

67035 Redevelopment plan—5500-02, 5526-28 Robin (Special)

67036 Redevelopment plan—2928 Victor (Special)

67037 Redevelopment plan—4317-19 Maryland (Special)

67038 Vacation—Bay Street from Keokuk (Special)

67039 Martin Luther King Drive legal description—amends Ordinance 66461 (Special)

67040 Vacation—east/west alley in city block 3904 (Special)

67041 Zoning—parcels in city block 5485 to "C" Multiple-Family (Special)

67042 Redevelopment plan—2633 S. Kingshighway (Special)

67043 Housing conservation District—27th ward amends 63175 (Repealed by 67914)

67044 Planned Unit Development District—Block 4052 Highland Walk PUD (Special)

67045 Zoning—parcels in city blocks 4148, 4150, 4159, 41645 and 5059.06 (Special)

67046 Zoning—parcels in city block 2781.06 (Special)

67047 Grant—Childhood Lead Poisoning—Good Fences Make Good Neighbors (Special)

67048 Zoning—parcels in city blocks 2172, 2173, 2174 and 2175 to "J" Industrial (Special)

67049 Planned Unit Development District—city block 4580.06, Trinity Condominiums Planned Unit Development District (Special)

67050 Planned Unit Development District—city block 3899, Parkhurst Condominiums Planned Unit Development District (Special)

67051 Redevelopment Area—Union Club Redevelopment Area (Special)

67052 Redevelopment Plan—Gilded Age L.L.C. (Special)

67053 Tax Revenue Notes—Union Club Redevelopment (Special)

67054 Redevelopment plan—Loop Hotels (Special)

67055 Tax Increment Revenue Notes—6175-81 Delmar (Special)

67056 Redevelopment plan—5819 Delmar (Special)

67057 Tax Increment Revenue Notes—5819 Delmar (Special)

67058 Redevelopment Area—Grand Center amends 65703 and 66430 (Special)

67059 Redevelopment Area—Grand Center TIF amends 65857 and 66431 (Special)

67060 Redevelopment Area—Grand Center amends 65858 (Special)

67061 Redevelopment Area Plan—Euclid/ Buckingham (Special)

67062 Redevelopment Area—Euclid/ Buckingham (Special)

67063 Redevelopment Area/Plan—Loop Center North LLC. (Special)

67064 Tax Increment Notes—Loop Center North (Special)

67065	Redevelopment Area—Ludwig Lofts (Special)
67066	Redevelopment Plan—Ludwig Partners, L.L.C. (Special)
67067	Tax Increment Notes—Ludwig Lofts (Special)
67068	Redevelopment Plan—LOOP TIF, Inc. (Special)
67069	Tax Increment Notes—Delmar East Loop Redevelopment (Special)
67070	Redevelopment Plan—Syndicate Condominiums (Special)
67071	Tax Increment Notes—Syndicate Trust Redevelopment Project (Special)
67072	Airport—space permit with Trans State Airlines (Special)
67073	Wireless telephone use in motor vehicles (17.83)
67074	Facsimile or counterfeit plate or tag (17.52.080)
67075	Public urination and defecation (15.39)
67076	Fire Department—grant for Meeting Neighbors and Saving Lives (Special)
67077	Sidewalks—repairs (20.26.240—20.26.280)
67078	Airport—space permit with GoJet Airlines (Special)
67079	House numbering (20.16.060)
67080	Planned Unit Development—Lindell Condominiums (Special)
67081	Vacation—Clemens from Rosedale to Skinker and Rosedale from Enright to Skinker (Special)
67082	Vacation—alleys in city block 194 (Special)
67083	Vacation—East Road at Wise (Special)
67084	Vacation—Ellendale from St. James Square (Special)
67085	Supply—surplus property donation (5.60.027)
67086	Vacation—2nd Street from Martin Luther King Dr. to Carr (Special)
67087	Vacation—unnamed street from Hall to Riverview Dr. (Special)
67088	Loughborough Commons Community Improvement District—establishment (Special)
67089	Port—lease with Slay Bulk Terminals, Inc. (Special)
67090	Budget (Special)
67091	Voter proposition—increase in graduated business license tax (8.07.010)
67092	Excise—licenses in First Ward (Repealed by 67701)
67093	Excise—licenses in Twenty-first Ward (Special)
67094	City Justice Center—sale of bonds (refunding) (Special)
67095	Borrowing of funds (Special)
67096	Carnahan Courthouse—sale of bonds (refunding) (Special)
67097	Downtown Economic Stimulus Authority (Special)
67098	Planned Unit Development—4218 West Pine (Special)
67099	Excise—licenses in Twenty-fourth Ward (Special)
67100	Airport—Airport Engineering Assistance Program (Special)
67101	Airport—capital improvement projects (Special)
67102	Vacation—Hill Street from Broadway to Missouri Pacific Railroad (Special)
67103	Vacation—north/south alley in city block 74 (Special)
67104	Streets—seasonal closing of North 20th at Ferry (Special)
67105	Airport—Operating Lease with American Airlines (Special)
67106	Planned Unit Development-city block 4613A, Dogtown Terrace Townhouses (Special)
67107	Streets—closing of 17th at Chouteau (Special)
67108	Planned Unit Development—city block 6401, Boulevard Heights (Special)
67109	Enright/Arlington Community Improvement District (Special)

67110	Zoning—parcels in city block 4065 to "C" Multiple-Family (Special)
67111	Zoning—parcels in city block 4629 to "J" Industrial (Special)
67112	Zoning—parcels in city block 3922 to "H" Area Commercial (Special)
67113	Excise—repealed Ordinance 66155 and enacted prohibition in Fourth Ward (Special)
67114	Airport—Airfield Projects Public Works, amends Ordinance 65162, 65626 and 66611 (Special)
67115	Airport—Building Projects Public Works, amends Ordinance 65163, 65625 and 66612 (Special)
67116	Airport—lease with Southwest Airlines (Special)
67117	Airport—lease with Delta Airlines (Special)
67118	Sidewalks—repair in A thru G districts (20.26.240)
67119	Civil Rights Enforcement Agency (3.44)
67120	Parking Commission—issuance of parking revenue bonds (Special)
67121	Parking Commission—appropriations of Parking Division (budget) (Special)
67122	Leasehold Revenue Bonds—Series 2005 appropriations (Special)
67123	Redevelopment plan—4242-44 Virginia (Special)
67124	Redevelopment plan—6048 North Pointe (Special)
67125	Redevelopment plan—1917 Dodier (Special)
67126	Redevelopment plan—Bacon/St. Louis/N. Garrison (Special)
67127	Redevelopment plan—3917 Shaw (Special)
67128	Redevelopment plan—4245 Forest Park (Special)
67129	Redevelopment plan—Forest Park Southeast Scattered Sites (Special)
67130	Redevelopment plan—5435-75 Cabanne (Special)
67131	Redevelopment plan—1520 S. Grand (Special)
67132	Redevelopment plan—2621 Ann and 2629 & 2647 Shenandoah (Special)
67133	Redevelopment plan—2923-25 Shenandoah (Special)
67134	Redevelopment plan—2711 Ann (Special)
67135	Redevelopment plan—3910 Cleveland (Special)
67136	Redevelopment plan—3656 & 4131 Russell Blvd. Area (Special)
67137	Redevelopment plan—2300-04 Cherokee (Special)
67138	Redevelopment plan—459-61 Laurel Place, 5733 Waterman, and 5744 DeGiverille (Special)
67139	Redevelopment plan—1537 Fairmount & 1553 Kraft (Special)
67140	Redevelopment plan—7209 Lindenwood (Special)
67141	Redevelopment plan—4171 Connecticut (Special)
67142	Redevelopment plan—3905 Utah & 3801 Wyoming (Special)
67143	Real estate purchase—1520 Market Street (Special)
67144	Redevelopment plan—4501-03 Mary Ave (Special)
67145	Tax Increment Financing District—4100 Forest Park Redevelopment Area repealed Ordinance 65379 (Special)
67146	Redevelopment Area—4100 Forest Park (Special)
67147	Airport—grant agreement for reimbursement of land acquired (Special)
67148	Airport—agreement with Lambert Airport Eastern Perimeter Joint Development Commission (Special)
67149	Airport—sale of with City of Kinloch (Special)
67150	Vacation—east/west alley in city block 938 (Special)
67151	Vacation—portion of Buckingham Court (Special)

67152 Vacation—18th Street at Chouteau and east/west alley in city block 482-WA (Special)

67153 Streets—honorarily designate Sullivan as "Noble Drew Ali Place" (Special)

67154 Community Improvement District—620 Market and STL Market (Special)

67155 Excise—Twenty-Second Ward Liquor Control District (Special)

67156 Katrina Relief—reimbursement of funds (Special)

67157 Real property—sale by Treasurer to OPUS NWR parcels in city blocks 3884 (Special)

67158 Zoning—parcels from A to F in city block 4608 (Special)

67159 Zoning—parcels from A to J in city blocks 4612 and 4613.33 (Special)

67160 Grant—removal and replacement of sidewalk on Gravois (Special)

67161 Grant—truck entrance at Broadway and St. Louis Avenues (Special)

67162 Zoning—parcels from J to F in city block 3094 (Special)

67163 Zoning—parcels from B to C in city block 4147 (Special)

67164 Zoning—parcels from A to F in city block 5690 (Special)

67165 Vacation—Lucas from 19th to 20th (Special)

67166 Vacation—Lucas from Jefferson to 23rd (Special)

67167 Community Improvement District—Broadway Hotel CID (Special)

67168 Vacation—"L" shaped alley in city block 3545 (Special)

67169 Vacation—north/south alley in city block 1863 (Special)

67170 Vacation—Poplar and 7th (Special)

67171 Vacation—north/south alley in city block 1253 (Special)

67172 Excise—removal of moratorium in Twenty-fourth Ward, repeals Ordinance 67099 and 66597 (Special)

67173 Non-binding vote—residency for civilian employees of police department (Not codified) Passed

67174 Ville Historic District—designation (Special)

67175 Benton Park Neighborhood Historic District—designation (Special)

67176 General Obligation Bond—issuance for radios and street improvement (Special)

67177 Real property—sale to Mark Twain Community Alliance property in city block 5143 (Special)

67178 Park East Lofts PUD—expanded District (Special)

67179 TIF—Southtown Redevelopment Area (Special)

67180 Gardenside Subdivision Special Business District—continue tax levy (Special)

67181 Gardenside Subdivision Special Business District—change in boundaries (Special)

67182 Lafayette Park—lease of Police Sub Station (Special)

67183 Real property—sale of property in city block 678 to Jameson Development (Special)

67184 Redevelopment plan—4046 Russell (Special)

67185 Redevelopment plan—4002 Castleman (Special)

67186 Grant-Human Services for nonviolent offenders (Special)

67187 Redevelopment plan—4421 Ridgewood (Special)

67188 Redevelopment plan—3837-43 Russell (Special)

67189 Court cost—increase (3.08.410)

67190 Zoning—parcels in city block 141,144,145, 556.04, 557, 581 and 583.04 to "I" Central Business District (Special)

67191 Real property—sale of parcels in city blocks 3956 and 3958 to Bissingers, Inc. (Special)

67192 Excise—restriction of licenses in Third Ward Liquor Control District (Special)

67193 Graduated license fee increase uses (8.07.015)

67194 Graduated license fee increases—Not applicable because voters approved tax increase of Ordinance 67193 (Not codified)

67195 Ballot—authorized sales tax of one-eighth for local parks—submitted November 7, 2006 Passed (22.12.070)

67196 Fire Department—Intergovernmental Agreement with St. Clair County, Ill (Special)

67197 Fire Department—agreement with police, board of education and community college (Special)

67198 Streets—closing of 22nd and Newhouse (Special)

67199 Redevelopment plan—3963-83 Gratiot (Special)

67200 Redevelopment plan—3830 and 3838 Park (Special)

67201 Redevelopment plan—1916-20 Geyer (Special)

67202 Redevelopment plan—3327-29 Indiana (Special)

67203 Redevelopment plan—3219 Iowa (Special)

67204 Redevelopment plan—3243 Texas (Special)

67205 Redevelopment plan—7317-29 S. Broadway (Special)

67206 Real property—sale of parcels in city blocks 123 and 1124 to Fourteenth Street Mall Associates (Special)

67207 Redevelopment plan—10th Street/11th Street/Lami Scattered Sites (Special)

67208 Transportation Trust Fund—appropriation to Bi-State (Special)

67209 Transportation Sales Tax—appropriation (Special)

67210 Redevelopment plan—1906-12 and 1921 S. 9th and 830 Geyer (Special)

67211 Redevelopment plan—1835 S. 9th Street (Special)

67212 Redevelopment plan—3339-43 Washington (Special)

67213 Redevelopment plan—2100-02 Wyoming (Special)

67214 Redevelopment plan—3631 Ohio (Special)

67215 Redevelopment plan—3163 Portis (Special)

67216 Redevelopment plan— 2745 Locust (Special)

67217 Redevelopment plan—5025 Raymond (Special)

67218 Redevelopment plan—4215-19 and 4236-4306 W. Labadie and 3001-15 Lambdin (Special)

67219 Redevelopment plan—5180 Cates (Special)

67220 Planned Unit Development—Bottle District (Special)

67221 1201 Washington Community Improvement District—establishment (Special)

67222 South Grand Community Improvement District—petition approval (Special)

67223 Redevelopment plan—Mansion House Center (Special)

67224 Redevelopment plan—Charles Russell Area (Special)

67225 Redevelopment plan—Manchester/ Mitchell Area (Special)

67226 Redevelopment plan—2927 Michigan (Special)

67227 Community Improvement District—Bottle District (Special)

67228 Redevelopment plan—Benton Park (Special)

67229 Redevelopment plan—1511-19 Angelrodt (Special)

67230 Vacation—Compton north of Walsh (Special)

67231 Vacation—north/south alley in city block 1740, Mallinckrodt from West Florissant, Destrehan from 23rd to 22nd, Destrehan from N. Florissant to alley in city block 1741 and Destrehan from 22nd east to alley in city block 1741 (Special)

67232 Vacation—Wilson from Esther to Sulphur (Special)

67233 Noise—organized events (15.50.030)

67234 Vacation—River Bluff Place between Broadway and Mississippi River (Special)

67235 Redevelopment Area—Park Pacific Redevelopment Area (Special)

67236 Redevelopment Area—2200 Gravois (Special)

67237 Redevelopment Area—600 Washington (Special)

67238 Redevelopment Area—Jefferson Arms (Special)

67239 Redevelopment Agreement—410 N. Jefferson, LLC (Special)

67240 Redevelopment Agreement—amended Ordinance 66434, Rothschild Development (Special)

67241 Redevelopment Agreement—amended Ordinance 66559, Convention Plaza Apartments (Special)

67242 Redevelopment Agreement—amended Ordinance 65978, City Hospital Development (Special)

67243 Vacation—Clark between Stadium Plaza and Broadway (Special)

67244 Redevelopment plan—4220, 4228-34 and 4229-33 Maryland (Special)

67245 Public work—Soulard Bike Path Extension Project (Special)

67246 Public work—Loughborough Bridge over Union Pacific Railroad (Special)

67247 Airport—lease with American Airlines (Special)

67248 Airport—grant for Master Plan Update, Phase 1 (Special)

67249 Public work—airport reconstruction of Taxiway D (Special)

67250 Real property—sale to Ameren UE property in city block 453 (Special)

67251 Streets—closing of Labadie at Vandeventer (Special)

67252 Streets—Ordinance 64075 two-way stop Oakland at Lawn Place repealed, enacted two-way stop at Oakland and Kingshighway (Special)

67253 Vacation—18th at Chouteau, Papin at 18th and Papin at 17th (Special)

67254 Real property—sale to Brannon Avenue Warehouse property in city blocks 4739 and 4740 (Special)

67255 Treasurer—Parking Revenue Bonds (Special)

67256 Supplemental appropriation (Special)

67257 Vacation—east/west alley in city block 3922 (Special)

67258 Parking District—Olive/Pine Residential Parking District (Special)

67259 Firefighters' retirement system investments (4.18.225)

67260 Streets—honorarily name Oregon as "Father Joe Roelke Place" (Special)

67261 Redevelopment plan—Page/Dr.M.L.King/Compton/School/ Cook (Special)

67262 Fire Department—grant for "Meeting Neighbors and Saving Lives" (Special)

67263 Block Grant Funds (Special)

67264 Redevelopment plan—3670 Castleman Avenue (Special)

67265 Redevelopment plan—4141 Botanical Avenue (Special)

67266 Redevelopment plan—4106 Shenandoah (Special)

67267 Redevelopment plan—2333 S. Grand (Special)

67268 Redevelopment plan—3023 Allen/1920 Longfellow (Special)

67269 Redevelopment plan—2521 Minnesota (Special)

67270 Redevelopment plan—1923 Compton (Special)

67271 Redevelopment plan—2109-11 Olive Street (Special)

67272 Redevelopment plan—4300 Duncan and 405 Boyle (Special)

67273 Redevelopment plan—5601-03 Botanical (Special)

67274 Redevelopment plan—2306 N. Broadway and 119-21 Monroe (Special)

67275 Redevelopment plan—Salisbury, N. 23rd, N. 25th Vest Area (Special)

67276 Redevelopment plan—4265 Russell (Special)

67277 Redevelopment plan—6504 Prescott (Special)

67278 Redevelopment plan—6814-16 Pennsylvania (Special)

67279 Redevelopment plan—7100 Pennsylvania (Special)

67280 Transportation Project Agreement—620 Market Transportation Development District and 620 Market Building (Special)

67281 Redevelopment plan—3143-45, 3450 Arsenal (Special)

67282 Redevelopment plan—2347 Rutger (Special)

67283 Redevelopment plan—2624 Nebraska (Special)

67284 Redevelopment plan—3910, 3956 DeTonty, 3861, 3867 Shaw, 1819 Lawrence (Special)

67285 Redevelopment plan—2806 Accomac (Special)

67286 Redevelopment plan—2210 Ann (Special)

67287 Redevelopment plan—3415-17 Indiana (Special)

67288 Redevelopment plan—4056-58 Minnesota (Special)

67289 Redevelopment plan—2805 Shenandoah (Special)

67290 Redevelopment plan—Hall Street Industrial Area (Special)

67291 Redevelopment plan—1926 Withnell (Special)

67292 Redevelopment plan—1827-29 Allen (Special)

67293 Redevelopment plan—2308-10 S. 11th (Special)

67294 Redevelopment plan—2817 Wyoming (Special)

67295 Redevelopment plan—4239 Botanical (Special)

67296 Zoning—parcel in city block 4647 to "F" Neighborhood Commercial District (Special)

67297 Zoning—parcel in city block 5473 to "H" Area Commercial District (Special)

67298 Port Real Property—lease with Fred Weber (Special)

67299 Port Real Property—lease with Alberici Constructors (Special)

67300 Port Real Estate—lease with S.I. Warehousing, Co., Inc. d/b/a Archway Fleeting & Harbor (Special)

67301 Redevelopment Area—1859 Grand Avenue/Cozens/Evans (Special)

67302 Portable storage units (20.53)

67303 Central West End Historic District—extension of boundaries (Special)

67304 Redevelopment Plan, Area-Page Partners, II (Special)

67305 Tax Increment Revenue Notes—Grand Avenue/Cozens, Evans Area (Special)

67306 Controlled substances near parks, schools, church or daycare (11.60.270)

67307 Vacation—Biddle, Carr, Sixth, O'Fallon, and north/south alley in city block 557 (Special)

67308 Streets—stop site on Northland at Kingshighway and Union (Special)

67309 Tax Increment Financing Redevelopment Agreement Amendment—Argyle (Special)

67310 Qualifications for probationary fire privates (Not codified)

67311 Tax Increment Financing and Redevelopment Plan—Cupples Station (Special)

67312 Redevelopment Area—Ballpark Lofts (Special)

67313	Redevelopment plan and Agreement—4100 Forest Park Development Inc. (Special)
67314	Tax Increment Revenue Notes—4100 Forest Park (Special)
67315	Airport—federal obligation grant (Special)
67316	Airport—lease with American Airlines (Special)
67317	Airport—Revenue Refunding Bonds, Series 2006 (Special)
67318	Redevelopment Area—GEW Lofts (Special)
67319	Redevelopment Area—Tudor Building/1818 Washington (Special)
67320	Development Area—designation under Missouri Downtown and Rural Economic Stimulus Act (Special)
67321	Implementing Missouri Downtown and Rural Economic Stimulus Act by establishing Community Development Corporation Revolving Fund (Special)
67322	Zoning—change zoning from 'K' Unrestricted District to the 'D' Multiple-Family Dwelling District in City Blocks 4392 and 5887 (Special)
67323	Zoning—change to the "H" Area Commercial District parcels of land in City Block 1859 (Special)
67324	Traffic Code repealing portions of Ordinance 65351 and Ordinance 57831 and enacting/replacing with new sections 17.02.230, 17.14.010, 17.14.050 and 17.40.040 of the Revised Code related to traffic regulations, construction zones, and emergency vehicles (17.02.230, 17.14.010, 17.14.050, 17.40.040)
67325	Building Code—amending Section 118.1 of Section Three of Ordinance 66790 (25.01.030)
67326	Authorizing a Grant Agreement with the Office of Justice Programs' Bureau of Justice Assistance to fund a project Bulletproof Vest Partnership Agreement (Special)
67327	Prohibiting the issuance of any package or drink liquor licenses for any premises within the boundaries of the Twenty-Fourth Ward Liquor Control District, as established herein, for a period of three years (Special)
67328	Collector of Revenue—repealed Ordinance 66397 and adopted ten (10) new sections regarding the appointment of and the salaries of certain employees in the Collector of Revenue's office pursuant to Section 82.610, RSMo. (4.44)
67329	Office of the Recorder of Deed—repealed Ordinances 66399 and adopted new provision relating to the employees and salaries of the Office of the Recorder of Deeds (4.43)
67330	Treasurer's Office—repealed Ordinance 66279 and adopted provisions relating to the number and salaries of the Treasurer's Office (4.26.015—4.26.023, 4.26.040—4.26.060)
67331	Parking Meter Division—repealed Ordinance 66382 and adopted ordinance relating to the position classification and salaries of the Parking Division employees (4.30.010—4.30.025)
67332	Sheriff's Office—repealed Ordinance 66742 and established salaries of employees in Sheriff's Office (4.36)
67333	Classified Employee Service Plan—repeals Ordinance 66272 and enacts plan pertaining to classification and pay scale (4.10)
67334	License Collector—repealed Ordinance 66398 and adopted ordinance pertaining to list of classes and rates of compensation of certain employees of the License Collector (4.28)
67335	Medical Examiner—repeals Ordinance 66401 and enacts classification and pay rates Medical Examiner's Office (4.54)
67336	Redevelopment plan—S. Jefferson/Gravois/Potomac Area (Special)
67337	Redevelopment plan—N. 13th/Warren/Wright/Blair Ave. Area (Special)
67338	Redevelopment plan—3301-05, 3401-05, 3419, 3439, 3503-05 Park Ave. Area (Special)

67339 Redevelopment plan—2633 Armand Pl. & 2749 Accomac Street Area (Special)

67340 Redevelopment plan—2007 Ann Avenue & 2840 Accomac Street (Special)

67341 Redevelopment plan—3309 Salena St & 2620 Missouri Ave (Special)

67342 Redevelopment plan—3853 Flad Avenue (Special)

67343 Redevelopment plan—3526-28 Pestallozi Street (Special)

67344 Redevelopment plan—3246 Michigan & 3522-26 Calif. Etc. (Special)

67345 Redevelopment plan—2600 Minnesota Ave. (Special)

67346 Redevelopment plan—2622-24 Louisiana (Special)

67347 Redevelopment plan—3445 Shenandoah Ave. (Special)

67348 Redevelopment plan—1916 Nebraska Ave. (Special)

67349 Community Improvement District—1235 Washington (Special)

67350 Enhanced Enterprise Zone—an ordinance requiring that the City takes the steps to apply to the State of Missouri for designation of Enhanced Enterprise Zone (Special)

67351 Redevelopment Plan—Terry Park Area (Special)

67352 Redevelopment Plan—4454 Chouteau Ave. (Special)

67353 Redevelopment Plan—Union/Page/Academy/Maple Area (Repealed by 67793)

67354 Redevelopment Plan—60 Plaza Square & 1709 Pine Street (Special)

67355 Airport Grant Agreement—grant agreement for Project No. 3-29-0085-101-2006 (Special)

67356 Airport Public Works—authorizing a Fourth Amendment to Building Projects Public Works Ordinance (Special)

67357 Airport Indenture of Lease—establishing a multi-year public work program for terminal complexes, etc. (Special)

67358 Airport Indenture of Lease—executing a seventh amendment to the Indenture of Lease (Special)

67359 Liquor—Twenty-Second Ward—Repealing Ordinance 66277 (Special)

67360 Tax Incremental Finance Revenue Notes—600 Washington, One City Centre (Special)

67361 Tax Incremental Finance Revenue Notes—Pyramid Construction, Inc. (Special)

67362 Circuit Attorney Office—allocating positions Section 56.540 RSMo to classes with grades and schedule setting minimum and maximum salaries (4.48)

67363 Community Improvement District—Olive Condominiums, 60 Plaza Square (Special)

67364 Transportation Project Agreement—Broadway Hotel TDD and HDH, LLC. (Special)

67365 Parking—disabled persons definition and inclusion of blindness (17.76.020)

67366 Traffic—stop site Riverview Blvd. and Newby (Special)

67367 Traffic—directs Director of Streets to close, barricade traffic on Chambers/16th (Special)

67368 Traffic—stop site on Dr. Martin Luther King Blvd./Belt (Special)

67369 Streets—Repeals Ordinance 55918 which directs Director to remove stop sign on Bancroft Ave. (Special)

67370 Vacation—city block 1463 bounded by Hartford/Arkansas/Juniata/Grand (Special)

67371 Vacation—alley in city block 1859 (Special)

67372 Streets—Cochran Plaza Subdivision, street names, city block 578 & 586 (Special)

67373 Street—Designate Clark Street as "Brett Hull Way" (Special)

67374 Vacation—alley in City Block 940 as bounded by Martin Luther King, 20th, Delmar and 21st (Special)

67375 Vacation—Wise Ave. at Tamm (Special)

67376 Vacation—French Market Court from Hickory northward (Special)

67377 Vacation—City Block 438W bounded by Hickory/Dolman/Park/18th (Special)

67378 Vacation—City Block 528 to Linden St., from 14th St. to alley (Special)

67379 Vacation—Geyer Ave. from Serbian to city block 1341 (Special)

67380 Vacation—alley in city block 1335 (Special)

67381 Vacation—alley in city block 931 (Special)

67382 Vacation—alleys in city block 1007 (Special)

67383 Public Works—Salisbury Enhancement Project (Special)

67384 Public Works—Goodfellow Blvd. Improvement Project (Special)

67385 Public Works—Halls Ferry Circle Reconstruction Project (Special)

67386 Public Works—Market Street Interconnect Project between Compton Ave. and Tucker Blvd. (Special)

67387 Authorization to enter into agreement with St. Louis University, Utilities, Bi-State Development Agency, and other Governmental Agencies for Grand Ave. Streetscape, Vicinity Research Bldg., Grand Ave. Streetscape Chouteau I-44 Phase I (Special)

67388 Vacation—portion of Arsenal from McCausland to the River Des Peres (Special)

67389 Solicitations—permitting, regulating, defining, and penalty clause; repealing Ordinance 52194 and Ordinance 40234 (8.84)

67390 Special Use District—North Broadway Vicinity Commercial Areas (Special)

67391 Charter Amendment—submission to the voters for a proposed amendment to the Charter to repeal Section 24, Article IV and enact a new Section 24 of Article IV, relating to fines-provides for an election (Charter Art. IV § 24)

67392 Brick Dealers—repeals Ordinance 59429, requirements for city business license and permit, penalty clause (8.28A)

67393 Zoning—zoning change in city block 3911 to "G" Local Commercial and Office District (Special)

67394 Zoning—zoning change from "B" and "H" to "D" and "H" in city block 1463 (Special)

67395 Central West End Certified Local Historic District—extension of boundaries under provisions of Title 24 (Special)

67396 Flood Regulation—repealing Ordinance 65420 and transferring from Zoning Code to Building Code (25.01.760)

67397 Plan Unit Development District—Clifton Heights Townhomes Subdivision, repeals Ordinance 66681 (Special)

67398 2007 St. Louis Works and the 50/50 Sidewalk Programs City Wide (Special)

67399 Airport Planning Project—First Amendment to Sec. One of the Airport Planning Project Ordinance 66870, appropriation from Airport Development Fund into Airport Planning Project (Special)

67400 Airport Commission—authorizing and establishing Environmental Planning Programming, and Remediation Implementation Program (Special)

67401 Zoning Code—repealing Section 26.88.020 of Section 23 of Ordinance 59973 and enacted new provision pertaining to duties and authority of Zoning Administrator (26.88.020)

67402 Port Authority Commission—lease agreement with Consolidated Grain and Barge (Special)

67403 Port Authority Commission—lease agreement with Great Rivers Greenway District (Special)

67404 Real Property Sale—3011 Lambdin Avenue by City to Reutilization Authority (Special)

67405 Agreement to Purchase—Anheuser-Busch to purchase property in city blocks 2801 & 2804 (Special)

67406 Real Property Sale—2405 Cass Avenue to True Grace Baptist Church (Special)

67407 Easement—Union Electric d/b/a Ameren U.E. (Special)

67408 Development Area—Designation of Ballpark Village Development Area under Missouri Downtown & Rural Economic Stimulus Act (Special)

67409 Development Plan, Project, Area—Development Agreement with Ballpark Village Holding Co. (Special)

67410 Bonds—Authorization to assign new state revenues, Modesa Local Revenues, Dedicated Municipal Revenues to pay bonds issued by Ballpark Development Area (Special)

67411 Community Improvement District Designation—Ballpark Village Community Improvement District and Ballpark Holding Co., LLC (Special)

67412 Transportation Project Agreement—Ballpark Village Transportation Development District (Special)

67413 Wi-Fi Access with SBC Internet Services d/b/a AT&T Internet Services Agreement (Special)

67414 LEED Green Building rating system for all newly constructed and renovated city-owned facilities (Special)

67415 Tax Incremental Finance Revenue Notes—Caitlin Townhomes Redevelopment Plan (Special)

67416 Animal Shelter—Arsenal-Ellendale Park (Special)

67417 Redevelopment Agreement—McGowan Bros. for Grace Loft TIF (Special)

67418 Tax Incremental Finance Revenue Notes—Grace Lofts TIF Redevelopment Project, Repeals Ordinance 65856 (Special)

67419 Redevelopment Agreement—Moon Bros. (Special)

67420 Tax Incremental Finance Revenue Notes—Moon Bros. Carriage Lofts TIF Redevelopment Project, Repeals Ordinance 66826 (Special)

67421 Lease—Cabanne House to St. Louis Ambassadors, Inc. (Special)

67422 Lease—Shakespeare Festival of St. Louis, Inc. (Special)

67423 Displaced Building Service Workers Protection Ordinance (15.160)

67424 Scrap Metal—licensing requirements, rules, and regulations (15.159)

67425 Traffic—stop sign for Jamison Ave. (Special)

67426 Authorizes President of Board of Public Service to apply and receive grant funds for construction of two recreation centers (Special)

67427 Redevelopment Plan—3338-40 Texas Ave. Area (Special)

67428 Redevelopment Plan—2861-2863 Texas Ave. Area (Special)

67429 Redevelopment Plan—3943 Juniata Street Area (Special)

67430 Dog Park—City Block 1510, 3300-3304 Nebraska Ave. (Special)

67431 Redevelopment Plan—6100-08 Colorado Ave. (Special)

67432 Redevelopment Plan—1451-55 Gregg Ave. (Special)

67433 Redevelopment Plan—2922 & 2924 Sidney St. (Special)

67434 Redevelopment Plan—4235 Norfolk Ave. (Special)

67435 Community Improvement District—Cozens/MLK/Grand Community Improvement District (Special)

67436 Redevelopment Plan—310042 Franklin Ave./3121-37 Delmar Blvd. (Special)

67437 Redevelopment Plan—4030-46, 4005-25, 4031-33 Cook Ave. (Special)

67438 Redevelopment Plan—5186 Cabanne Ave. (Special)

67439 Redevelopment Plan—3942 Burgen Ave. (Special)

67440 Redevelopment Plan—5412 Botanical Ave. (Special)

67441 Redevelopment Plan—4517 & #51 Lewis Pl. (Special)

67442 Transportation Project Agreement with city block 5421/5975, TDD and Loop Hotel TDD (Special)

67443 Redevelopment Plan—Salisbury St., West Florissant Ave., Palm St., 23rd St., and 25th St.—adopted in Ordinance 65841 (Special)

67444 Reversionary Interest—Release and Termination of Reversionary Interest in 4350 Duncan Ave. and authorizing execution of Quit Claim Deed (Special)

67445 Redevelopment Plan—4052-60 Chouteau Ave. (Special)

67446 Redevelopment Plan—4104-54 Detonty Street (Special)

67447 Redevelopment Plan—4251 Shenandoah Ave. (Special)

67448 Redevelopment Plan—2816 S. Grand Ave., 3556 Magnolia Ave. (known as 2800 S. Grand Blvd) & 3557-59 Halliday Ave. (Special)

67449 Redevelopment Plan—3117 Russell Ave. (Special)

67450 Defines Blighted Area—2622-24 Louisiana Ave. (Special)

67451 Redevelopment Plan—100 N. Euclid Ave. (Special)

67452 Vacation—Lucas from 22nd to 23rd Street (Special)

67453 Community Improvement District—Gentry's Landing (Special)

67454 Transportation Project Agreement—Adler Lofts Transportation Development District and Adler Commercial, LLC (Special)

67455 Redevelopment Area—Grand and Shenandoah (Special)

67456 Redevelopment Area—Ice House #6 (Special)

67457 Redevelopment Plan—GEW TIF, Inc. (Special)

67458 Tax Incremental Finance Revenue Notes—GEW Lofts Redevelopment Project (Special)

67459 Redevelopment Plan, Project, and Area—1911 Locust Partners, LLC (Special)

67460 Tax Incremental Finance Revenue Notes—Foundry Redevelopment Project (Special)

67461 Redevelopment Area—Foundry Redevelopment Area (Special)

67462 Redevelopment Plan, Project, Area, and Agreement—Tudor TIF, Inc. & 1818 TIF, Inc. (Special)

67463 Tax Incremental Finance Revenue Notes—Tudor Building/1818 Washington Redevelopment Project (Special)

67464 Redevelopment Agreement—Ice House #6 of St. Louis L.L.C. (Special)

67465 Tax Incremental Finance Revenue Notes—Ice House #6 Redevelopment Project (Special)

67466 Vacation—Botanical to Grand westward (Special)

67467 Vacation—north/south alley city block 2111 (Special)

67468 Redevelopment Agreement—First Amendment to Redevelopment Agreement with Balke Brown Assoc. (Special)

67469 Tax Incremental Finance Revenue Notes—Pet Building Redevelopment Project (Special)

67470 Redevelopment Area, Project, and Agreement—First Main Properties, LLC (Special)

67471 Tax Incremental Finance Revenue Notes—Grand/Shenandoah Redevelopment Project (Special)

67472 Redevelopment Plan, Area, Project, and Agreement—2200 Gravois LLC (Special)

67473 Tax Incremental Finance Revenue Notes—2200 Gravois Redevelopment Project (Special)

67474 Redevelopment Plan—Ballpark Lofts1 TIF Inc., Ballpark Loft 2, Inc., and Ballpark Loft 3 TIF, Inc. (Special)

67475 Redevelopment Agreement—restated and amended with Integration Development, Inc., Automobile Row TIF (Special)

67476 Board of Estimate and Apportionment—authorization directing St. Louis Municipal Finance Corp. to negotiate with Bond Insurer to receive consent to amend documents relating to Forest Park Leasehold (Special)

67477 Lease—Barnes Jewish Hospital (Special)

67478 Zoning—parcels in city block 2022 to "I" Central Business District (Special)

67479 Vacation—First Street (Special)

67480 Tax Incremental Financing—Ballpark Loft Redevelopment Project (Special)

67481 Redevelopment Plan—3907 N. Wharf Street (Special)

67482 Redevelopment Plan—1208 & 1310-16 MacKay Pl. (Special)

67483 Annual Operating Budget Plan for the City of St. Louis for Fiscal Year 2007-2008 (Special)

67484 Agreement between City and Missouri Highways and Transportation Commission Relating to the Construction and Maintenance of the I-64 Improvement and Reconstruction Project (Special)

67485 Vacation at O'Fallon Street from Lewis Street to Wharf (Special)

67486 Vacation at Mason from Hickory southwardly to a point 15' wide east/west alley City Block 152 bounded by Hickory, 6th, I-44 and Mason, Sixth from Hickory southwardly 115' to a point (Special)

67487 Vacation at North/South Alley and the "L" shaped alley in City Block 504 as bounded by Olive, Tucker, Pine and 13th (Special)

67488 Redevelopment Area—Designation of Foundry Redevelopment Area, Adopting TIF within the Area, Establishing the Foundry Special Allocation Fund (Special)

67489 Redevelopment Plan—Adoption of a Redevelopment Plan, Area, Project and Agreement with 1911 Locust Partners, LLC (Special)

67490 Tax Increment Revenue Notes—Issuance and Delivery of TIF notes for Foundry Redevelopment Project (Special)

67491 Redevelopment Area—Designation of Grand and Shenandoah Redevelopment Area known as Grand and Shenandoah, Adopting TIF within the Area, Establishing the Grand and Shenandoah Special Allocation Fund (Special)

67492 Redevelopment Plan—Adoption of a Redevelopment Plan, Area, Project and Authorization to Execute Agreement with Pelican Court Development Corporation Adopting TIF within the Area, Establishing the Foundry Special Allocation Fund (Special)

67493 Tax Increment Revenue Notes—Issuance and Delivery Grand and Shenandoah Redevelopment Project (Special)

67494 Enhanced Enterprise Zone (EEZ)—Establishment of zone and authorizing real estate tax abatement for property in the Enhanced Enterprise Zone (EEZ) of the City, and establishing the business cluster focus of the EEZ (Special)

67495 Board of Estimate and Apportionment—Authorizing the St. Louis Municipal Finance Corporation to issue and sell Recreation Sales Tax Leasehold Revenue bonds for funding of construction and renovation of recreation centers (Special)

67496 Board of Estimate and Apportionment—Authorizing the St. Louis Municipal Finance Corporation to issue and sell Corporation's Abram Building Lease Revenue bonds to pay and reimburse City for costs for purchasing the building at 1520 Market Street, St. Louis, Missouri, 63103 (Special)

67497 Borrowing of funds in anticipation of tax payments levied for the Calendar Year ending December 31, 2007 and remaining uncollected and other revenues remaining to be collected and deposited in the General Revenue Fund for the Fiscal Year Ending June 20, 2008 through the Issuance of Tax and Revenue Anticipation Notes and Acquisition of Credit Enhancement, if necessary (Special)

67498 Airline Shops Building Lease Agreement, AL-460, between the City and Northwest Airlines, Inc. (Special)

67499 Airline Service Building Lease Agreement, AL-463, between the City and United Airlines, Inc. (Special)

67500 "Operating Agreement" (Wireless Internet Access System), AL-472, between the City and Concourse Communications St. Louis, LLC (Special)

67501 Supplemental Appropriation of $2,300,000 from the Airport Development

Fund to Annual Budget for current expenses of the government (Special)

67502 Establishing a public works and improvement program ("Building & Environ Projects") at Lambert-St. Louis International Airport (Special)

67503 Ratifying and adopting the Passenger Air Service Incentive Program for the Airport as well as authorizing and directing the Director of Airports to implement the program (Special)

67504 Authorizing the transfer of moneys ($12,000,000) from the Airport Development Fund to the Airport Contingency Fund and further authorizing a transfer of funds of up to $12,000,000 from the Airport Contingency Fund to the Airport Revenue Fund (Special)

67505 Authorizing the transfer of moneys ($3,200,000) from the Airport Development Fund to the Airport Contingency Fund and further authorizing the transfer of funds of up to $200,000 from the Airport Contingency Fund to the Airport Revenue Fund (Special)

67506 Authorizing and directing Director of Airports and the Comptroller to execute on behalf of the City the Airport Use and Lease Agreement, AL-689, between the City and Airtran Airways, Inc. (Special)

67507 Authorizing and directing the Director of Airports and the Comptroller to execute on behalf of the City the Space Permit (Shirt Room), AL-018, between the City and Paradies-Concession II-Arch, Inc. (Special)

67508 Establishment of the 1400 Washington Redevelopment Area, approval of a Redevelopment Plan and Redevelopment Project, and adoption of TIF financing within the Redevelopment Area (Special)

67509 Authorizing the execution of a Redevelopment Agreement between the City and WTD Venture, LLC for the 1400 Washington Redevelopment Plan (Special)

67510 Authorizing the issuance and delivery of Tax Increment Revenue Notes (not to exceed $11,500,000) for the 1400 Washington Redevelopment Project (Special)

67511 Streets—Honorary designation of Fourth Street between Market Street and Chestnut Street as "Dred Scott Way" (Special)

67512 Redevelopment Plan—1400 S. Second Street Area (Special)

67513 Parking—establishing an administrative adjudication system for violations (17.62.260)

67514 Redevelopment Plan—8024-8100 Water Street Area (Special)

67515 Redevelopment Plan—7900 Van Buren Street Area (Special)

67516 Redevelopment Plan—St. Louis/Burd/Maffitt/Clara Avenue Area (Special)

67517 Planned Unit Development District—"Cabanne Townhomes Planned Unit Development District" (Special)

67518 Planned Unit Development District—"5849 and 5860 Clemens Planned Unit Development District" (Special)

67519 Redevelopment Plan—5540 W. Park Ave., 1249 & 1319-1325 Macklind Avenue Area (Special)

67520 Redevelopment Plan—1463 S. Vandeventer Area (Special)

67521 Streets—Repeals Ord. 63376 closing Whittier Avenue south of McPherson (Special)

67522 Streets—Closes McRee and Thurman, also intersection of Blaine and Thurman (Special)

67523 Redevelopment Plan—1401 Pine Street Area (Special)

67524 Vacation—In the north/south alley in City Block 1607 as bounded by Winnebago, Arkansas, Chippewa and Grand (Special)

67525 Tax Abatement—for certain properties known as Etzel II, in accordance with Ord. 55268 and the Redevelopment Plan for the West End Urban Renewal Area (Special)

67526 Adoption of Redevelopment Plan, Area, Project, and Authorization to Execute Agreement with Park Pacific TIF, Inc. (Special)

67527 Adoption of a Development Plan, Area, Project and Authorization to Execute Agreement with Park Pacific TIF, Inc. (Special)

67528 Designation of permit parking only within "The Laclede-Forest Park-Newstead Parking District" (17.102)

67529 Designation of permit parking only within "The Kentucky and Talmage Residential Parking District" (17.103)

67530 Designation of permit parking only within "The 4500 Block of Chouteau Avenue Residential Parking District" (17.104)

67531 Zoning change of property in Block 674 to the "G" Local Commercial and Office District (Special)

67532 Closure of street at 20th at Newhouse (Special)

67533 Real Property—Sale of parcels, 8520, 8601, and 8602 Michigan Avenue (Special)

67534 Authorization for Mayor to apply for funding under H.U.D. Office of Healthy Homes and Lead Hazard Control—Lead Safe Program (Special)

67535 Real Property—Sale of parcels at 5124 and 5431 North Euclid to Union West Florissant Housing Solutions, Inc. (Special)

67536 Redevelopment Plan—2839 Accomac Street Area (Special)

67537 Redevelopment Plan—2234 Jules Street Area (Special)

67538 Redevelopment Plan—2415 Salena Avenue Area (Special)

67539 Redevelopment Plan—2624 Ann Avenue Area (Special)

67540 Redevelopment Plan—2652 Ann Avenue Area (Special)

67541 Redevelopment Plan—1915-17 Lynch Street Area (Special)

67542 Redevelopment Plan—1959-63 Arsenal Street Area (Special)

67543 Redevelopment Plan—2816 & 2838-40 McNair Avenue Area (Special)

67544 Redevelopment Plan—2865 Salena Street Area (Special)

67545 Redevelopment Plan—3249-51 Nebraska Avenue Area (Special)

67546 Redevelopment Plan—2803-05 Wyoming Street Area (Special)

67547 Redevelopment Plan—7019 Minnesota Avenue Area (Special)

67548 Redevelopment Plan—4218 West Pine Boulevard Area (Special)

67549 Redevelopment Plan—Mark Twain Scattered Sites Area (Special)

67550 Redevelopment Plan—5918 DeGiverville Avenue Area (Special)

67551 Redevelopment Plan—Patch Scattered Sites II Area (Special)

67552 Redevelopment Plan—5960 Dr. Martin Luther King Drive Area (Special)

67553 Redevelopment Plan—6601 Michigan Avenue and 6822-30 S. Broadway Street Area (Special)

67554 Redevelopment Plan—4442 S. Spring Avenue Area (Special)

67555 Redevelopment Plan—3229-31 Itaska Street Area (Special)

67556 Redevelopment Plan—3400 Meramec Street Area (Special)

67557 Redevelopment Plan—4133 Virginia Avenue Area (Special)

67558 Redevelopment Plan—4225 S. Kingshighway Boulevard Area (Special)

67559 Redevelopment Plan—5374-80 Magnolia Avenue and 2706-08 Macklind Avenue Area (Special)

67560 Redevelopment Plan—4107 Botanical Avenue Area (Special)

67561 Redevelopment Plan—3319-21 S. 18th Street Area (Special)

67562 Redevelopment Plan—3340 & 3344 Morgan Ford Road Area (Special)

67563 Redevelopment Plan—Forest Park Southeast Scattered Sites IV Area (Special)

67564 Redevelopment Plan—4306 Chouteau Avenue Area (Special)

67565 Redevelopment Plan—1418-20 Sullivan Avenue Area (Special)

67566 Redevelopment Plan—2800 N. 9th Street Area (Special)

67567 Redevelopment Plan—2730-32 Miami St. Area (Special)

67568 Redevelopment Plan—3653 South Compton Avenue Area (Special)

67569 Redevelopment Plan—3863 North Utah Place Area (Special)

67570 Community Improvement District—Park Pacific CID (Special)

67571 Redevelopment Plan—3960-62 Cleveland Avenue Area (Special)

67572 Redevelopment Plan—2223-29 Jefferson Avenue Area (Special)

67573 Redevelopment Plan—2342 S. 11th Street Area (Special)

67574 Redevelopment Plan—2650 Armand Place Area (Special)

67575 Redevelopment Plan—2926 Missouri Avenue Area (Special)

67576 Redevelopment Plan—3307-09 South 18th Street Area (Special)

67577 Redevelopment Plan—3319 Salena Street Area (Special)

67578 Redevelopment Plan—4239 Lindell Boulevard Area (Special)

67579 Redevelopment Plan—1728 Dick Gregory Place Area (Special)

67580 Redevelopment Plan—5067-75 Delmar Boulevard Area (Special)

67581 Redevelopment Plan—1470 S. Vandeventer Avenue Area (Special)

67582 Community Improvement District—1400 Washington CID (Special)

67583 Authorizing and directing the Mayor and Comptroller to enter into a lease agreement between the City and Steel Warehouse Company LLC for certain land on Unimproved Wharf for a period of 10 years (Special)

67584 Authorizing the issuance and delivery of Tax Increment Revenue Notes (not to exceed $21,410,000) for the Park Pacific Redevelopment Project (Special)

67585 Supplemental Appropriation (Special)

67586 Parking Commission—appropriations for payment of operating expenses, capital equipment, and improvement expenses of the Parking Division of Treasurer's Office, Kiel and Argyle Parking Facilities, Chouteau and Williams Paper Parking Facilities & Central Downtown Parking Facility for the fiscal year beginning July 1, 2007 (Special)

67587 Real Property Sale—3025-27 Marnice Place to Otis L. Taylor from the City (Special)

67588 Prohibiting issuance of any package liquor license for any non-licensed premises within the boundaries of the Eighteenth Ward Liquor Control District for a period of three years (Special)

67589 Appropriation of funds ($20,545,000) from the "Transportation Trust Fund" to the Bi-State Development Agency for transportation purposes subject to conditions (Special)

67590 Transportation Sales Tax—creating "City Public Transit Sales Tax Trust Fund" and directing Treasurer to deposit funds received pursuant to said tax into this fund, appropriating $10,550,300 from said

sales tax to the Bi-State Development Agency, providing for payment of funds during the July 1, 2007 to June 30, 2008 period, and further providing that the Comptroller may not issue warrants on the Treasurer for amounts greater than the amount of proceeds deposited in the fund (Special)

67591 Cooperation Agreement between the City and Gateway Foundation that provides procedures for the improvement of a two-block portion of the Gateway Mall and for the operation and maintenance of said property after improvements are complete (Special)

67592 Prohibiting the operation of any vehicle by any person whose driver's license or driving privileges have been canceled, suspended, or revoked (17.52.285)

67593 Community Improvement District—Flora Place CID (Special)

67594 Executing and accepting grant agreement by USA through the FAA for reimbursement of the direct costs associated with improving runway safety area 12L-30R (Phase 2) (Special)

67595 "Agreement and Contract of Sale" between St. Louis and Lambert Airport Eastern Perimeter Joint Development Commission (Special)

67596 Settlement Agreement between the City of St. Louis and the City of Bridgeton, Missouri concerning St. Louis' W-1W Expansion Program of the Airport (Special)

67597 Approving a Fair Share Agreement between the City of St. Louis and United Association of Journeyman and Apprentices of the Plumbing and Pipe Fitting Industry of the U.S. & Canada Affiliated with AFL-CIO Local Union No. 562 (Special)

67598 Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Third Ward Liquor Control District for a period of three years (Special)

67599 Real Property Sale—1639 Knapp Street to Connie Parker, Wilma Parker, and Patricia Parker (Special)

67600 Public Nuisance—repealing Ordinance 66181 and enacting new ordinance establishing procedures for abatement of public nuisances (15.42)

67601 Real Property Sale—property in City Block 291 to A and F Realty LLC (Special)

67602 Authorizing and directing the issue and sale of St. Louis Municipal Finance Corporation's Taxable Pension Judgment Leasehold Revenue and/or Refunding Bonds, Series 2007 and Taxable Pension Judgment Service Contract Revenue Bonds, Series 2007 (Special)

67603 Zoning change for property in City Block 3097 to "G" Local Commercial and Office District (Special)

67604 Zoning change for property in City Block 4647 from "A" Single-family Dwelling District and "F" Neighborhood Commercial District to "F" Neighborhood Commercial District only, so as to include a particular parcel of land in City Block 4752.03 (Special)

67605 Zoning change for property in City Block 1125 to "F" Neighborhood Commercial District (Special)

67606 Zoning change for property in City Blocks 414, 415, 820, 820.04, and 820.05 to the "H" Area Commercial District (Special)

67607 Zoning Code—repealing Chapter 26.48 pertaining to the "H" Area Commercial District of Ordinance 59979 and enacting in lieu thereof a new chapter pertaining to the same Zoning district (26.48)

67608 Establishing a public works and improvement project for the design, removal, and partial construction of the North Tucker Viaduct (Special)

67609 Authorization for Mayor to enter into grant agreement with HUD for Lead Hazard Control Grant funds (Special)

67610 Streets—repealing Ordinance 62459 and authorizing temporary closure of Oakland Avenue 100 feet west of South Newstead (Special)

67611 Food Service Establishments—allowing a customer to be accompanied by a dog in the permitted outdoor dining area of food service establishments located within the City with exceptions and under certain conditions (10.04.345)

67612 Bonds—submission of special bond election to be held February 5, 2008 for the incurring of indebtedness and the issuance of bonds of the City (Special)

67613 Airport—authorizing and directing Director of Airports and Comptroller to enter into and execute an Agreement and Contract of Sale between the City and Hunter Engineering Company (Special)

67614 Airport—First Supplemental Appropriation from the Series A Commercial Paper Construction Account of the Commercial Paper Construction Fund into the Building Projects (Special)

67615 Airport—First Supplemental Appropriation from the Series A Commercial Paper Construction Account of the Commercial Paper Construction Fund into the Taxiway D Project (Special)

67616 Airport—First Supplemental Appropriation from the Series A Commercial Paper Construction Account of the Commercial Paper Construction Fund into the Airport Schedule F CIP Project (Special)

67617 Adopted pursuant to Section 105.483(11), RSMo., reaffirming the provisions of Ord. 62391 and Ord. 66691 establishing a policy for the disclosure of potential conflicts of interests and substantial interests for certain municipal officials (4.07)

67618 St. Louis Municipal Finance Corporation to sell and issue its Police Capital Improvement Sales Tax Leasehold Revenue Bonds, Series 2007 (Special)

67619 Redevelopment Plan—2626 Oregon Avenue Area (Special)

67620 Redevelopment Plan—1824-26 Chouteau Avenue Area (Special)

67621 Redevelopment Plan—2810 Clark Street Area (Special)

67622 Redevelopment Plan—2321 Minnesota Ave. and 3445 Pestalozzi St. Area (Special)

67623 Redevelopment Plan—3320-30 N. Kingshighway Blvd. Area (Special)

67624 Redevelopment Plan—2301-27 N. Kingshighway Blvd. Area (Special)

67625 Vacation—Vista Ave. from Carr Lane to Grand (Special)

67626 Vacation—First Street from Branch southwardly 155 feet to a point of First Street previously vacated by Ordinance 45289 (Special)

67627 Vacation—1) Second Street from Palm to Branch. 2) Palm Street 130 feet east of Broadway and continuing eastwardly to a point on Palm previously vacated by Ordinance 45289 (Special)

67628 Redevelopment Plan—Lincoln Ave./ Cottage Ave./N. Sarah St. Area (Special)

67629 Streets—temporarily close 4800 block of Carter Ave. at Shreve Ave. (Special)

67630 Redevelopment Plan—4520-30 and 4525 N. Euclid Area (Special)

67631 Redevelopment Plan—5214 Kensington Avenue Area (Special)

67632 Redevelopment Plan—3319-27 Gustine Avenue Area (Special)

67633 Redevelopment Plan—4443 and 4449 Olive Street Area (Special)

67634 Redevelopment Plan—2641 Allen Avenue Area (Special)

67635 Redevelopment Plan—1903-05 Serbian Drive Area (Special)

67636 Redevelopment Plan—3451 Wyoming Avenue Area (Special)

67637 Redevelopment Plan—3836-38 Shenandoah Avenue Area (Special)

67638 Redevelopment Plan—3901-03 Botanical Avenue Area (Special)

67639 Redevelopment Plan—3413 Indiana Avenue Area (Special)

67640 Redevelopment Plan—2207 Lynch Street Area (Special)

67641 Redevelopment Plan—3142 Texas Avenue Area (Special)

67642 Redevelopment Plan—3166 Pennsylvania Avenue Area (Special)

67643 Redevelopment Plan—3701-03 & 3710 Illinois Avenue Area (Special)

67644 Redevelopment Plan—2623-25 Iowa Ave., 2659 California Ave., 2608-10 & 2659 Oregon Avenue Area (Special)

67645 Redevelopment Plan—7529, 7620 Michigan Avenue and 7700-08 Ivory Avenue Area (Special)

67646 Vacation—1) Devolsey from Gravois to Cushing, 2) A portion of Cushing beginning 13.21' west of Devolsey and extending eastwardly 120.00' to a point east of Devolsey (Special)

67647 Vacation—1) Mallinckrodt from 25th Street eastwardly to a point. 2) The southernmost designated portion of the 20 foot wide north/south alley in City Block 1748 as bounded by Salisbury, 23rd, Mallinckrodt and 25th (Special)

67648 Redevelopment Plan—4158 West Pine Blvd. Area (Special)

67649 Redevelopment Plan—4972 Eichelberger Street Area (Special)

67650 Redevelopment Plan—4318 Frieda Avenue Area (Special)

67651 Vacation—15 foot wide alley in City Block 2170 as bounded by LaSalle, Ranken, Hickory and Theresa (Special)

67652 Establishing a public works and improvement project for the design and construction of the Manchester Avenue Enhancement Project between Taylor Ave. and Sarah Ave. (Special)

67653 Vacation—1) The remaining portion of the 15 foot wide alley in City Block 3955 as bounded by Sarpy, Vandeventer, St. Bernard Land and Gratiot, 2) An irregular section of right-of-way adjacent to City Block 3956 which is bounded by Gratiot, Vandeventer and I-64 (Special)

67654 Vacation—remaining 75 foot portion of 15 foot wide alley in City Block 506 as bounded by Olive, 14th, Pine, and 15th (Special)

67655 Vacation—Cole Street from First Street to Commercial St. (Special)

67656 Vacation—Schirmer St. from Idaho Ave. eastwardly to the 15 foot wide alley in City Blocks 3102 and 3136 (formerly 3109) (Special)

67657 Vacation—Mound Street from Broadway to 8th Street and the 12 foot wide alley in City Block 655 as bounded by Brooklyn, Broadway, Mound and 8th (Special)

67658 Vacation—50' portion of 15 foot wide alley in City Block 3904 abutting 4389 Duncan and 4388-98 Forest Park, same being bounded by Forest Park Ave., Boyle Ave., Duncan Ave. and Newstead Ave (vacated) (Special)

67659 Vacation—tract of land being part of Dock Street bounded on the south by City Block 661-E, on the west by Hall Street, on the north by City Block 2541, and on the east by Wharf per Ordinance 5403 (Special)

67660 Vacation—20 foot wide alley in City Block 1219 abutting 3935 N. Broadway and 3930 N. Ninth, same being bounded by Angelica, Broadway, Bremen and Ninth (vacated) (Special)

67661 Acceptance of Grant Award from the United Way Community Investment Committee and to expend those funds appropriately (Special)

67662 Redevelopment Plan—6502 West Park Avenue Area (Special)

67663 Redevelopment Plan—2629 Ann Avenue Area (Special)

67664 Redevelopment Plan—4355 West Pine Blvd. Area (Special)

67665 Establishing a City Health Insurance Committee to recommend programs concerning health/medical insurance coverage offered by the City to its employees in the classified service and others and authorizing the services of a contractual health insurance consultant (4.10.225)

67666 Employee benefits—amending Section Twenty-two of Ordinance 67333 by authorizing the City Health Insurance Committee to recommend programs for health/medical insurance coverage for employees (4.10.220)

67667 Public Records—establishing city policy pursuant to Chapter 610 of Missouri Statutes, including designating custodians of record and establishing closed records (3.100.010—3.100.020)

67668 Community Improvement District—The Chemical Building CID (Special)

67669 Community Improvement District—Grand and Shenandoah CID (Special)

67670 Redevelopment Area, Plan, and Project—Leather Trades Building Redevelopment Area (Special)

67671 Affirming adoption of redevelopment plan, area, and project between City and LTL Building LLC—designating LTL Building, LLC as developer (Special)

67672 Authorizing the issuance of Tax Increment Revenue Notes (not to exceed $2,850,000) for the Leather Trades Building Redevelopment Project (Special)

67673 Amendment of redevelopment agreement between City and 5700 Property, LLC, amending Ordinance 66668 (Special)

67674 Authorizing the issuance of Tax Increment Revenue Notes (not to exceed $1,340,000) for the 5700 Arsenal Redevelopment Project, repealing Ordinance 66669 (Special)

67675 Community Improvement District—amendment to 2017 Chouteau CID Petition approved (Special)

67676 Planning Commission—two new public street names approved in the Blumeyer IV Subdivision in City Block 6493 (Special)

67677 Amendment of City Hospital TIF Redevelopment Plan (Special)

67678 Authorizing the issuance of Tax Increment Revenue Notes (not to exceed $12,200,000) for the City Hospital 3 Redevelopment Project (Special)

67679 Redevelopment Area—Affirming the boundaries of the GEW Lofts Redevelopment Area to correct an error (Special)

67680 Redevelopment Area—Affirming the boundaries of the City Block 1859 Grand/Cozens/Evans Redevelopment Area to correct an error (Special)

67681 Redevelopment Plan, Area, Project Area, Project between City and Gilded Age, L.L.C.-City Hospital RPA 3 Redevelopment Project-Georgian Square (Special)

67682 Redevelopment Plan—518-22 N. Newstead Avenue Area (Special)

67683 Vacation—Portion of a 15' wide alley in City Block 5473 as bounded by Wilson, Sulphur, Elizabeth and Esther beginning south of the 15' wide alley in the same City Block previously vacated by Ordinance 66261 (Special)

67684 Zoning change for property in City Block 4083 from "A" Single-Family Dwelling District to "F" Neighborhood Commercial District (Special)

67685 Port Authority Commission—authorizing and directing Mayor and Comptroller to enter into a lease agreement between the City and USA for mooring rights on the Unimproved Public Wharf for a period of 5 years (Special)

67686 Real Property Sale—property in City Block 1114 to Fourteenth Street Mall Associates, L.P. (Special)

67687 Airport—federal grant agreement for reimbursement of direct costs associated with 14 CFR Part 150 Noise Compatibility Study, Master Plan Update (Phase II) (Special)

67688 Airport—federal grant agreement for reimbursement of land acquired in fee for W-1W noise mitigation within 70-74 DNL (Phase 4) (Special)

67689 Airport—federal grant agreement for reimbursement of direct costs associated with Noise Mitigation Acoustical Program for residencies within 65-69 DNL (Phase 6) (Special)

67690 Airport—federal grant agreement for reimbursement of direct costs associated with Security Enhancement-Perimeter Fencing (Special)

67691 Airport—federal grant agreement for the reimbursement of direct costs associated with rehabilitating Taxiway Foxtrot, Phase 2 (Special)

67692 Lease—City Block 436 to Cannon Design Powerhouse, LLC for 15 years with 2 additional 5-year options (Special)

67693 Community Improvement District—1401 Pine CID (Special)

67694 Grant Agreement with Missouri Emergency Management Agency to fund the purchase of emergency responder equipment (Special)

67695 Public works and improvement project—The Cherokee Enhancement Project between Nebraska Avenue and Jefferson Avenue (Special)

67696 Public works and improvement project—The Hampton and Nottingham Intersection Improvement Project (Special)

67697 Public works and improvement project—The Salisbury Street Enhancement Project-Phase 2 between North Florissant Ave. and 11th Street (Special)

67698 Regulation of non-residential swimming pools, amending 65567 (11.79.020, 11.79.450)

67699 Streets—designate D'Amato Court between Goodfellow Blvd. to City limits west as "Bishop Willie Ellis Jr. Court" (Special)

67700 Vacation—15' wide alley in City Block 6217 as bounded by Murdoch, Tamm, Nottingham and Childress (Special)

67701 Liquor—First Ward Liquor Control District for three years, repealing Ordinance 67092 (Special)

67702 Authorizing the issuance of Tax Increment Revenue Notes for the Security Building Redevelopment Project, repealing Ordinance 66199 (Special)

67703 Amendment to Redevelopment Agreement between City and Security Building Partners, LLC, amending Ordinance 66198 (Special)

67704 Authorizing the issuance of Tax Increment Revenue Notes for the Bee Hat Redevelopment Project, repealing Ord. 66851 (Special)

67705 Amendment to Redevelopment Agreement between City and BHAT TIF Developer, Inc, amending Ordinance 66849 (Special)

67706 2008 Annual Plan to the United States Department of Housing and Urban Development as required to apply for funding under the Federal Community Development Block Grant, HOME Investment Partnerships, Emergency Shelter Grant and Housing Opportunities for Persons with AIDS (Special)

67707 Authorizing the issuance of Tax Increment Revenue Notes for the Marquette Building Redevelopment Project, repealing Ordinance No. 66577 (Special)

67708 Authorizing the issuance of Tax Increment Revenue Notes for the 1136 Washington Redevelopment Project, repealing Ord. No. 66578 (Special)

67709 Amendment to Redevelopment Agreement between City and TLG Marquette, L.L.C., amending Ord. 66555 (Special)

67710 2nd Amendment to Redevelopment Agreement between City and AD Brown Acquisition, LLC, amending Ord. No. 66557 (Special)

67711 Board of Public Service—ratifying the execution of an option to purchase real estate for additional park land between the City and Rothschild Winzerling, LLC (Special)

67712 Authorizing the issuance of Tax Increment Revenue Notes for the Fashion Square TIF Redevelopment Project, repealing Ord. No. 66009 (Special)

67713 Amendment to Redevelopment Agreement between City and Fashion Square, LLC, amending Ord. No. 65981 (Special)

67714 Community Improvement District—Orpheum Theatre CID-amended petition approved (Special)

67715 Execution of financing agreement for the issuance of Revenue Bonds to refund the Taxable Tax Increment Revenue Notes (Loughborough Commons Redevelopment Project) Series 2006 and CID Sales Tax Revenue Note, Series 2007 and assigning certain TIF Revenues and CID Revenues for the benefit of the Revenue Bonds (Special)

67716 Issuance of Parking Revenue Bonds, Series 2007A and Series 2007B (not to exceed $18,000,000) (Special)

67717 Relating to taxes on telephone companies; amending Section Two of Ord. 42529, by reducing the rate of tax on gross receipts imposed therein from 10 percent to 7.5 percent; clarifying the meaning of the term "telephone company" for purposes of any City tax on telephone companies; and adding certain provisions to determine application of the tax, repealing Sections 23.34.050—23.34.070 and 23.34.090 (23.34.020)

67718 Redevelopment Plan—3501 Juniata St. Area (Special)

67719 Redevelopment Plan—3714 Ohio Avenue Area (Special)

67720 Redevelopment Plan—5753 Page Blvd. Area (Special)

67721 Redevelopment Plan—5582-98 Dr. Martin Luther King Drive and 1476-82 Clara Avenue Area (Special)

67722 Redevelopment Plan—2636 Lemp Ave. Area (Special)

67723 Redevelopment Plan—5017 Washington Place Area (Special)

67724 Redevelopment Plan—4222-26 N. Grand Blvd. Area (Special)

67725 Redevelopment Plan—5107 Wabada Ave. Area (Special)

67726 Redevelopment Plan—4544-46 Virginia Ave. Area (Special)

67727 Redevelopment Plan—1955 Utah St. Area (Special)

67728 Redevelopment Plan—1956 Provenchere Pl. Area (Special)

67729 Redevelopment Plan—3330 Missouri Ave. Area (Special)

67730 Redevelopment Plan—4455 Nebraska Ave. Area (Special)

67731 Redevelopment Plan—2209 Missouri Ave. Area (Special)

67732 Redevelopment Plan—2257 South Jefferson Ave. Area (Special)

67733 Redevelopment Plan—3407-11 Utah St. Area (Special)

67734 Redevelopment Plan—1907 Sidney St. Area (Special)

67735 Redevelopment Plan—2108 Ann Ave. Area (Special)

67736 Redevelopment Plan—3846-48 & 3850-52 Shaw Ave. Area (Special)

67737 Redevelopment Plan—4272 Shenandoah Ave. Area (Special)

67738 Redevelopment Plan—2712-14 Potomac St. Area (Special)

67739 Redevelopment Plan—2636 Osage St. Area (Special)

67740 Redevelopment Plan—2211 & 2221 Lynch St. Area (Special)

67741 Redevelopment Plan—4017 Connecticut St. Area (Special)

67742 Redevelopment Plan—3426 Utah St. Area (Special)

67743 Redevelopment Plan—3805 Wyoming St. Area (Special)

67744 Redevelopment Plan—4167 Flad Ave. Area (Special)

67745 Redevelopment Plan—5415 Page Blvd. Area (Special)

67746 Redevelopment Plan—150 N. Tyler St. aka 1901 N. 1st Street Area (Special)

67747 Redevelopment Plan—5792 Waterman Blvd. Area (Special)

67748 Redevelopment Plan—4566-4600 Washington Ave. Area (Special)

67749 Redevelopment Plan—1212 Rev. G.H. Pruitt Pl. Area (Special)

67750 Redevelopment Plan—1918-20 N. Broadway Street Area (Special)

67751 Redevelopment Plan—100 N. Euclid Ave. Area (Special)

67752 Redevelopment Plan—3103-05, 3109 Magnolia Ave. Area (Special)

67753 Redevelopment Plan—2600-22 and 2627 Nebraska Avenue Area (Special)

67754 Redevelopment Plan—5326-34 Daggett Avenue Area (Special)

67755 Redevelopment Plan—815-17 Iron Street Area (Special)

67756 Redevelopment Plan—201 E. Steins Street Area (Special)

67757 Residential Disabled Parking—Repealing Section 17.76.020 and enacting a new Section and adding a Section (17.76.020, 17.76.110)

67758 Zoning—Zoning change to the "A" Single-Family Dwelling District in City Block 475 (Special)

67759 Zoning—Zoning change from "C" Multiple-Family Dwelling District to "G" Local Commercial and Office District in City Block 1397 (Special)

67760 Zoning—Zoning change from "K" Unrestricted District to "D" Multiple-Family Dwelling District and the "F" Neighborhood Commercial District to include City Blocks 792, 793 and 848 (Special)

67761 Zoning—Zoning change from "A" Single-Family Dwelling District to "F" Neighborhood Commercial District in City Block 4163 (Special)

67762 Zoning—Zoning change from "A" Single-Family Dwelling District to the "F" Neighborhood Commercial District in City Block 1254 (Special)

67763 Zoning—Zoning change from "J" Industrial District to "F" Neighborhood Commercial District in City Block 4807 (Special)

67764 Zoning—Zoning change from "A" Single-Family Dwelling District and "F" Neighborhood Commercial District to "F" Neighborhood Commercial District only in City Block 9115 (Special)

67765 Airport—authorization to enter into and execute Use and Lease Agreement AL-477 between City and Great Lakes Aviation, LTD (Special)

67766 Real Property—sale of parcel in city block 4469 to Cote Brilliante Presbyterian Church (Special)

67767 Grant—authorization for Department of Health to accept from Health Resources and Services Administration of the U.S. Dept. of Health and Human Services (Special)

67768 Establishing a four-way stop site at intersection of Cherokee Street and Michigan Street (Special)

67769 Streets—close 5300 Block of Savoy Court (Special)

67770 Streets—temporarily close north/south alley in City Block 6120 130 feet south of south curb line at Lillian Avenue (Special)

67771 Authorizing the City to enter into a Second Amendment to Memorandum of Agreement with the Bi-State Development Agency (Special)

67772 Vacation—a 15 foot wide airstrip above 18th Street north of Gratiot Street adjoining City Blocks 452 and 456 (Special)

67773 Real Property Sale—portion of 2899 Hamilton to Hurwitz Holdings, LLC (Special)

67774 Public Safety—one-half of one percent sales tax on retail sales made in the City for the purpose of providing revenues for the operation of public safety departments, submission to the voters to impose a tax, and authorizing tax if majority of voters approve of such tax (5.24.090)

67775 Authorizing acceptance of Grant Award from the Missouri Foundation for Health for funding infrastructure improvements (Special)

67776 Vacation—easternmost 260 feet of alley in City Block 3946 bounded by Papin, Pacific, Chouteau, and Vandeventer (Special)

67777 Streets—honorarily designate 10th Street as "Judge Clyde S. Cahill Jr. Sq." (Special)

67778 Streets—honorarily designate 8th Street as "Stan the Man Musial Drive" (Special)

67779 Vacation—1) Benton from east right-of-way line of Elliot eastwardly to the west right-of-way line of north/south alley in City Block 1901 (vacated) and City Block 2364, 2) Elliot from the north right-of-way line of Benton southwardly to a point in the City (Special)

67780 Zoning—change from "C" Multiple-Family Dwelling District and "G" Local Commercial and Office District to "G" Local Commercial and Office District only in City Block 3628 (Special)

67781 Zoning change from "D" Multiple-Family Dwelling District to "F" Neighborhood Commercial District in City Block 1125 (Special)

67782 Zoning change from "C" Multiple-Family Dwelling District to "J" Industrial District in City Block 1219 (Special)

67783 Zoning change from "J" Industrial District to "H" Area Commercial District, in City Block 941 (Special)

67784 Airport-federal grant agreement for the reimbursement of direct costs associated with the rehabilitation of Taxiway D (N to M and L to K) - Phase 1 (Special)

67785 Authorizing eighth amendment to the Indenture of Lease (AL-60) between the City and Lambert Field Fueling Facilities Corporation (Special)

67786 Airport-Cargo City Lease Agreement (AL-456) between the City and American Airlines, Inc. with a lease term ending June 30, 2011 (Special)

67787 Airport-East Terminal Agency Agreement (AL-446) between the City and Airport Terminal Services, Inc. (Special)

67788 Vacation—1) the 15 foot wide alley in City Block 2157-s, 2) the 15 foot wide "T-Shaped" alley in City Block 2159, 3) the 15 foot wide "T-shaped" alley in City Block 2160, 4) the 15 foot wide alley in City block 2161, 5) the 12 foot wide alley in City Block 2163 (Special)

67789 Redevelopment Plan—Euclid Ave./ Penrose St./Aubert Ave. Area (Special)

67790 Redevelopment Plan—2726-36 Sublette Avenue Area (Special)

67791 Redevelopment Plan—4105-4117 Dr. Martin Luther King Dr. Area (Special)

67792 Redevelopment Plan—Norwood Ct./ St. Louis Ave. Area (Special)

67793 Redevelopment Plan repealed as no redeveloper stepped forward; repealing ordinance 67353 (Special)

67794 Public Safety—providing in the event of approval by voters of sales tax by Ordinance 67774 for the use of the proceeds of such tax (Special)

67795 Streets—honorarily designate the southwest corner of Fair and Natural Bridge Streets as "Bishop Arthur L. Kelly Ave." (Special)

67796 Vacation—15 foot wide alley in City Block 509 as bounded by Olive, 18th, Pine, and 17th (Special)

67797 Vacation—20 foot wide alley in City Block 935 as bounded by Delmar, 22nd, Lucas, and 23rd (Special)

67798 Vacation—20 foot wide alley in City Block 636 as bounded by Montgomery, Hadley, Warren, and 13th (Special)

67799 Tethering, confinement and treatment of dogs and cats, amending Ordinance 66384 (10.04.010, 10.04.285)

67800 Prohibiting any person from harassment by means of the Internet or other electronic communications hereinafter referred to as "cyber harassment" (15.165.010—15.165.030)

67801 Real Property Purchase—property in City Block 4878 from Forest West Properties, Inc. (Special)

67802 Planned Unit Development District—portion of City Block 3893 to be known as "City Walk on Euclid Planned Unit Development District" (Special)

67803 Adoption of energy efficiency and greenhouse gas reduction policy for municipal building projects (Special)

67804 Office of the Recorder of Deeds Employees—employees and salaries, repealing Ordinance 67329 (4.34)

67805 Treasurer's Office Employees—number and salaries of employees, amending Ordinance 67330 (4.26)

67806 Parking Division Employees—position classifications and salaries of employees, amending Ordinance 67331 (4.30)

67807 Classified Service Plan—amending 67333 (4.10)

67808 Collector of Revenue Employees—appointment of and the salaries of certain employees, repealing Ord. 66397 (4.44)

67809 Circuit Attorney Office Employees—allocating positions to classes with grades and schedule setting minimum and maximum salaries for such grades, repeals and replaces Ordinance 67362 (4.48)

67810 Lease—approving assignment by American Golf Corporation of its lease of golf facilities in Forest Park to CNL Income EAGL Leasehold Golf LLC and a

sublease to Evergreen Alliance Golf Limited, L.P. (Special)

67811 Medical Examiner's Office Employees—compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization of Deferred Compensation Plan, repealing Ord. 67335 (4.54)

67812 Sheriff's Office Employees—fixing the annual rate of compensation of command personnel and deputies, repealing Ordinance 67332 (4.36)

67813 License Collector Employees—appointment and rates of compensation of employees, repealing Ordinance 67334 (4.28)

67814 Redevelopment Plan—Natural Bridge Ave./Euclid Ave./Shreve Ave. Sacramento Ave. Area (Special)

67815 Allocation of certain revenues; providing for the allocation of certain revenue to fund actuarially required contributions to the City's Employee Retirement System and debt on service bonds (Special)

67816 Redevelopment Plan—Adoption of a Redevelopment Plan, Area, Project and Agreement with Kwame Building Group, Inc. (Special)

67817 Tax Increment Revenue Notes—Issuance and Delivery of notes for Chouteau Newstead Redevelopment Project (Special)

67818 Redevelopment Area—Designation of 1910 Locust Redevelopment Area, Adopting TIF within the Area, Establishing the 1910 Special Allocation Fund (Special)

67819 Redevelopment Plan—Adoption of Redevelopment Plan, Area, Project and Authorization to Execute Agreement with Paradowski TIF, Inc. (Special)

67820 Tax Increment Revenue Notes—Issuance and Delivery of TIF notes for 1910 Locust Redevelopment Project (Special)

67821 Redevelopment Plan—Amendment to Redevelopment Plan for South Downtown Redevelopment Project (Special)

67822 First Amendment to the Ballpark Village Development Area Plan (Special)

67823 Development Plan—Adoption of a Development Plan, Area, Project, and Authorizing Execution of Amendment to

Agreement with CMC Real Estate Company (Special)

67824 Redevelopment Plan—1928 Wyoming Street Area (Special)

67825 Redevelopment Plan—2000-14 S. 7th Street Area (Special)

67826 Redevelopment Plan—2117 Lilly Avenue Area (Special)

67827 Redevelopment Plan—5337 Daggett Avenue Area (Special)

67828 Redevelopment Plan—2165 Russell Ave. Area (Special)

67829 Redevelopment Plan—908 Lafayette Ave. & 1911-17 S. 9th Street Area (Special)

67830 Redevelopment Plan—2757 Wyoming Street Area (Special)

67831 Redevelopment Plan—3239-41 Indiana Street Area (Special)

67832 Redevelopment Plan—2010-28 Mallinckrodt St. Area (Special)

67833 Redevelopment Plan—4535 Washington Ave. Area (Special)

67834 Redevelopment Plan—5128-30 Wabada Ave. Area (Special)

67835 Redevelopment Plan—2636 Accomac St. Area (Special)

67836 Redevelopment Plan—1836 Gravois Ave. Area (Special)

67837 Redevelopment Plan—2244 Indiana Ave. Area (Special)

67838 Redevelopment Plan—3214 California Ave. Area (Special)

67839 Redevelopment Plan—5801-05 Dr. Martin Luther King & 1507-11 Goodfellow Blvd. Area (Special)

67840 Redevelopment Plan—2200 Locust Street Area (Special)

67841 Redevelopment Plan—707 N. Kingshighway Blvd. Area (Special)

67842 Redevelopment Plan—1959 Lynch Street & 2730 McNair Ave. Area (Special)

67843 Redevelopment Plan—5723 Pennsylvania Avenue Area (Special)

67844 Redevelopment Plan—1016-28 Eichelberger Street, 1017-19 Eiler Street and 5421 Tennessee Ave. Area (Special)

67845 Redevelopment Plan—4012 Itaska St. Area (Special)

67846 Redevelopment Plan—3501 Harper St. Area (Special)

67847 Redevelopment Area—Nadira Place Redevelopment Area—approving plan and project, adopting TIF (Special)

67848 Authorizing the issuance of Tax Increment Revenue Notes for the Nadira Place Redevelopment Project (Special)

67849 Amendment to Redevelopment Agreement between the City and Loop Center, LLC, amending Ordinance 67063 (Special)

67850 Redevelopment Area—Chouteau Newstead Redevelopment Area—approving plan and project, adopting TIF (Special)

67851 Affirming Redevelopment Plan, Area, Project and authorizing Redevelopment Agreement between the City and Newstead Development, LLC for the Chouteau Newstead Redevelopment Project (Special)

67852 Streets—Close E. Obear Street at south line of Blair at E. Obear (Special)

67853 Streets—Close Obear Street at north line of Emily at Obear (Special)

67854 Streets—Close John Street at south line of Blair at John (Special)

67855 Streets—Close John Street at north line of Emily at John (Special)

67856 City Counselor—Authorizing Grant Agreement with the Office of Secretary of State for a grant to fund a Local Records Preservation Project for the City Counselor's office (Special)

67857 Streets—temporarily close northeast corner of Garfield (Special)

67858 Streets—temporarily close northwest corner on N. Market (Special)

67859 Streets—to temporarily close north Market Street; on Dick Gregory Place; remove, redirect and establish the direction of Aldine Avenue as one way street; remove, redirect and establish direction of Leduc as one way street; remove, redirect and establish direction of Cote Brilliante as one way street (Repealed by 67883)

67860 Zoning change from "J" Industrial District to "F" Neighborhood Commercial District in City Block 4807 (4455 Chouteau) (Special)

67861 Zoning change from "C" Multiple-Family Dwelling District to "F" Neighborhood Commercial District in City Block 5197 (Special)

67862 Redevelopment Plan—Bremen Ave./N. Florissant Ave./Angelica St./N. 21st Area (Special)

67863 Streets—honorarily designate School Street as "Rev. Steven G. Thompson Drive" (Special)

67864 Redevelopment Plan—2000 Hampton Ave. Area (Special)

67865 Redevelopment Plan—5017-5025 Northrup Avenue Area (Special)

67866 Zoning change from "J" Industrial District to "H" Area Commercial District in City Block 1540 (3411 S. Broadway) (Special)

67867 Public works and improvement project—design and construction of various bridge preventive maintenance procedures associated with "Bridge Maintenance and Management Plan" (Special)

67868 Traffic—two way stop site for all east-west traffic on Lafayette Avenue approaching the intersection of California and Lafayette Avenue (Special)

67869 Redevelopment Plan—3101 Chouteau Avenue Area (Special)

67870 Redevelopment Plan—N. Broadway St./Carrie Ave./Bulwer Ave./Harris Ave. Area (Special)

67871 Approving a Blighting Study and Plan for the McRee Town West Redevelopment Area as Recommended by Planning Commission, Approving acquisition of land by LCRA (Special)

67872 Vacation—1) Papin from Gratiot south (vacated Ord. 46915) and Papin from Grand west, 2) the 15' wide north/south alley and remaining 165' of the 20' wide east/west alley in City Block 2184 as bounded by Papin, Grand, Chouteau and Prospect (Special)

67873 Airport—First Supplemental Appropriation from Airport Development Fund into Airport Engineering Assistance Program (Special)

67874 Community Improvement District—100 N. Euclid Community Improvement District (Special)

67875 Zoning change from "A" Single-Family Dwelling District to "F" Neighborhood Commercial District in City Block 6124 (Special)

67876 Zoning change from "C" Multiple-Family Dwelling District and "G" Local Commercial Office District to "G" Local Commercial Office District only in City Block 6493 (Special)

67877 Designating a portion of the Downtown West Neighborhood within the 7th Ward as a Housing Conservation District; being bound by 15th Street, Chestnut, Pine, prolongation of 16th Street and Olive (Special)

67878 Zoning—approving an Amended and Restated Community Unit Plan for area in City comprising portion of Washington University Danforth Campus (Special)

67879 Amendment to Ords. 66494 and 66752 authorizing the execution of a Second Amendment to Redevelopment Agreement with Adler Lofts LLC (Special)

67880 Streets—temporarily closes Oakland at Kingshighway (Special)

67881 Vacation—Amend Section One of Ord. 67779, by revising legal description of 1) Benton from the east right-of-way line of Elliott eastwardly north/south alley in City Block 1901 (vacated) and City Block 2364, 2) Elliott from the north right-of-way line on Benton (Special)

67882 Redevelopment Agreement—Amends Ord. No. 67022 by authorizing the execution of an amendment to Amended and Restated Redevelopment Agreement with UVA Development Company (Special)

67883 Streets—Repealing Ord. 67859; to temporarily close north Market Street at Marcus Avenue and on Dick Gregory Place at north of Dr. Martin Luther King Drive; remove, redirect and establish the direction of Aldine Avenue as a one way street from eastbound to westbound; remove, redirect and establish direction of Leduc as a one way street from eastbound to westbound; remove, redirect and establish the direction of Cote Brilliante as a one way street from westbound to eastbound (Special)

67884 Real Property—Sale of parcel in city block 3946 to Bellon Holding Company (Special)

67885 Building—Amendment to provisions regarding enforcement of code violations relating to buildings, structures and premises in City, repeals Section Two 66857 which is Section 25.33.020 of the Code and enacts new provision on the same subject matter (25.33.020)

67886 Weeds—Ordinance pertaining to weed abatement and adding new section to the definitions, repealing Section Two of Ordinance 59860, which is Section 11.04.020 of the Code and enacts a new provision on the same subject matter (11.04.020)

67887 Littering—Ordinance pertaining to littering and amending Ordinance 56726 by repealing Section 805.010 of the Ordinance, which is 11.18.010 of the Code, and enacting a new ordinance on the same subject matter which relates to the enforcement and penalty of littering violations; also repeals Section 805.220 of Ordinance 56726, which is 11.18.220, and repeals Section 805.250 of Ordinance 56726, which is 11.18.240 of the Code and enacts new sections for repealed sections (11.18.010, 11.18.220, 11.18.240)

67888 Authorizing the 2008 St. Louis Works and the 50/50 Sidewalk Programs (Special)

67889 Real Property—sale of parcel in city block 369 to 1552 South 7th LLC (Special)

67890 Redevelopment Plan—5255 Maple Avenue Area (Special)

67891 Vacation—portion of north/south alley beginning south of Poplar continuing southwardly to a point in City Block 147 as bounded by Poplar, 6th, Cerre and 7th (Special)

67892 Redevelopment Area—Designation of Laclede Power House TIF Redevelopment Area, Adopting TIF within the Area, Establishing Laclede Power House Special Allocation Fund (Special)

67893 Redevelopment Plan—Adoption of a Redevelopment Plan, Area, Project and Agreement with MDLPG, Inc. (Special)

67894 Streets—Repeal Ord. 67854, close John Street at south of Blair at John (Special)

67895 Redevelopment Agreement—Amendment to Redevelopment Agreement with 4200 Laclede Corp. (Special)

67896 Vacation—Belmont Street and portion of 15th Street, both in City Block 220 (Special)

67897 Redevelopment Agreement—amending Ordinance No. 66652, execution of amendment with Dogtown Walk II, LLC (Special)

67898 Redevelopment Plan—Adoption of Redevelopment Plan, Area, Project and Agreement with Laurel TIF, Inc. (Special)

67899 Community Improvement District—establishment of Laurel Community Improvement District (Special)

67900 Transportation Development District—Authorization establishing TDD and project with Laurel Transportation Development District (Special)

67901 Designation of portions of McKinley Heights Neighborhood as a Local Historic District (Special)

67902 Zoning—change from "A" Single-Family Dwelling District to "C" Multiple-Family Dwelling District in City Block 4065 (Special)

67903 Zoning—zoning change from "A" Single-Family Dwelling District to "F" Neighborhood Commercial District, in City Block 5940 (Special)

67904 Lease and Concession Agreement within Gateway Transportation Center at 430 South 15th Street (Special)

67905 Airport—Authorization of a Second Supplemental Appropriation from Airport Development Fund (Special)

67906 Airport—Authorization of Second Supplemental Appropriation from Series A Commercial paper Construction Account, and b) from Airport Development Fund, into the Airport Schedule F CIP Project Ord. 67357 (Special)

67907 Airport—authorizing Director of Airports and Comptroller to enter into and execute a concession agreement with Xpress Spa (Special)

67908 Airport—authorizing Director of Airports and Comptroller to enter into and execute on behalf of City a First Amendment to its Airport Use and Lease Agreement (Special)

67909 Business License—Relating to the issuance of business licenses to individuals required by law to register as sex offender for offenses involving a minor, who seek to operate a business that concerns child-based activities; Repealing Section 8.02.150 of the Code and enacting new section (8.02.150)

67910 Tax Increment Revenue Notes—Issuance and Delivery of TIF notes for Laclede Power House Redevelopment Project (Special)

67911 TIF Revenue Notes—Issuance and Delivery of TIF notes for 600 Washington Redevelopment Project 2 (Special)

67912 Streets—honorarily designate Margaretta Avenue as "Officer Norvelle T. Brown Avenue" (Special)

67913 Vacation—portion of Kentucky beginning north of Chouteau (Special)

67914 City Housing Conservation Program—repealing earlier adopted ordinances establishing housing conservation districts and regulations (repealing 60632, 60677, 60733, 60734, 60798, 60853, 60929, 61178, 61180, 61293, 61545, 61845, 62195, 62335, 62404, 62449, 62561, 62780, 62876, 62879, 62887, 62925, 62927, 63003, 63113, 63121, 63175, 63401, 63657, 64283, 64400, 64456, 64543, 64544, 64677, 64842, 65499, 65640, 65712, 65743, 65949, 66704, 66977 and 67043) and enacting new ordinance on same subject matter (25.56)

67915 Redevelopment Plan—Amended Redevelopment Plan for Natural Bridge Ave./Euclid Ave./Shreve Ave./Sacramento Ave. (Special)

67916 Redevelopment Plan—Amendment to Redevelopment Plan approved under Ordinance 66979 for the 620 Market Street Area (Special)

67917 Liquor—Prohibiting issuance of any package or drink liquor for any non-licensed premises within boundaries of the Tenth Ward Liquor Control District for three years (Special)

67918 Panhandling—Regarding panhandling—repealing Ord. 62974 and enacting a new ordinance on the same subject matter; defining, prohibiting, regulating, and punishing the act of panhandling (15.44)

67919 Water rates; Repealing all prior ordinances and enacting new provisions on the same subject matter finding, determining and declaring an increase in certain water rates is necessary for certain purposes (23.04.220, 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, 23.20.040)

67920 Supplemental Appropriation to the Annual Budget Ord. 67483, for programs of the Affordable Housing Commission and Department of Human Services for fiscal year which began July 1, 2007 and ends June 30, 2008 (Special)

67921 Real Property—sale of parcel in city block 599 to Crown Mart 7 Inc. (Special)

67922 Regulate employer and employee working relationships between City and all employees under classified service, including compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan, repealing Ord. 67333 and Ord. 67807; allocating certain other employees to a grade with rate (4.10)

67923 Corrections—establishing an enrollment fee for the alternative community service program managed by Parole and Probation Staff of City of St. Louis (3.36.320)

67924 Special Use District—Grove Commercial Area Special Use District (Special)

67925 Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Fourth Ward Liquor Control District for a period of three years; repealing Ord. 67113 (Special)

67926 Director of Public Safety—authorizing Grant Agreement with the Office of Justice Programs' Bureau of Justice Assistance to fund a Bulletproof Vest Partnership Agreement (Special)

67927 Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Second Ward Liquor Control District for a period of three years (Special)

67928 Zoning change from "A" Single Family Dwelling District to "H" Area Commercial District in City Blocks 822, 1250 and 1251 (Special)

67929 Redevelopment Plan—Cora Ave./Dr. Martin Luther King Dr./Hills Terrace Area (Special)

67930 Redevelopment Plan—5021 Fyler Avenue Area (Special)

67931 Redevelopment Plan—7109 S. Broadway Street Area (Special)

67932 Redevelopment Plan—4239 Cleveland Ave. Area (Special)

67933 Redevelopment Plan—1544-1552 Fairmount Ave. Area (Special)

67934 Redevelopment Plan—3129 Oregon Ave. Area (Special)

67935 Second Amendment to Redevelopment Agreement in connection with the Phased-Redevelopment of Chouteau/Compton Redevelopment Area (Special)

67936 Authorizing the issuance of Tax Increment Revenue Notes (not to exceed $3,600,000) for the Chouteau/Compton Redevelopment Area, amending Ordinance 65118 (Special)

67937 Redevelopment Plan—2622 A. 11th St. Area (Special)

67938 Redevelopment Plan—2733 Ann Ave. Area (Special)

67939 Community Unit Plan—approval of CUP for portion of Washington University Medical Center (Special)

67940 Redevelopment Plan—4038-40 Arsenal St. Area (Special)

67941 Redevelopment Plan—1204-08, 1205 and 1219 Hebert Street Area (Special)

67942 Redevelopment Plan—2101-11 Palm Street Area (Special)

67943 Redevelopment Plan—4958 Miami Street Area (Special)

67944 Redevelopment Plan—2238-40 Shenandoah Ave. Area (Special)

67945 Redevelopment Plan—4237 Cleveland Ave. Area (Special)

67946 Redevelopment Plan—3011 Salena St. Area (Special)

67947 Redevelopment Plan—2626 S. 11th St. Area (Special)

67948 Redevelopment Plan—1617 Burd Ave. Area (Special)

67949 Redevelopment Plan—5960 Cote Brilliante Ave. Area (Special)

67950 Redevelopment Plan—3970-72 Fairview Area (Special)

67951 Redevelopment Plan—3463 Potomac Street Area (Special)

67952 Redevelopment Plan—5016 and 5077 Ridge Area (Special)

67953 Redevelopment Plan—5751 DeGiverville Area (Special)

67954 Redevelopment Plan—6168 Washington Ave. Area (Special)

67955 Redevelopment Plan—5147 Ridge Area (Special)

67956 Redevelopment Plan—4107 Shenandoah Area (Special)

67957 Redevelopment Plan—2801 Locust aka 531 N. Leffingwell Area (Special)

67958 Redevelopment Plan—5224 Daggett Area (Special)

67959 Redevelopment Plan—5528-32 Southwest Ave. Area (Special)

67960 Redevelopment Plan—211 S. Jefferson Area (Special)

67961 Redevelopment Plan—4011-15 Shaw Area (Special)

67962 Georgian Square Community Improvement District—establishment of a CID (Special)

67963	Employee Retirement System—Repealing Sections of Ordinance 66511, establishing provisions that meet the IRS requirements of a qualified retirement system (4.16)
67964	Soda Fountain Square Community Improvement District—establishment of a CID (Special)
67965	Amendment to Redevelopment Agreement by and between the City and 1511 Washington, TIF, Inc., amending Ordinance 66658 (Special)
67966	Authorizing the issuance of Tax Increment Revenue Notes for the East Bank Lofts TIF Redevelopment Project, repealing Ordinance 66677 (Special)
67967	Vacation—1) 25 foot wide alley in City Block 1740, 2) Destrehan from 23rd to 22nd, 3) Destrehan from N. Florissant west to alley in City Block 1741, and 4) Destrehan from 22nd east to alley in City Block 1741 (Special)
67968	Development Agreement for Olive and N. 9th Street grocery store in first floor of public parking garage between the City and SMI-NSG, LLC (Special)
67969	Board of Estimate and Apportionment—Authorizing St. Louis Municipal Finance Corporation to issue and sell Corporation's Taxable Pension Leasehold Revenue Bonds, Series 2008 or Taxable Pension Service Contract Revenue Bonds, Series 2008, or any combination thereof (not to exceed $37,000,000) for certain actuarially required contributions (Special)
67970	Zoning—from "C" Multiple-Family Dwelling District to "G" Local Commercial and Office District in City Block 3725 (Special)
67971	Redevelopment Area—Magnolia-Thurman Redevelopment Area—approving plan and project, adopting TIF (Special)

Beginning with July 2009, this table will be replaced with the "Code Comparative Table and Disposition List."

CODE COMPARATIVE TABLE AND DISPOSITION LIST

This is a chronological listing of the ordinances of St. Louis, Missouri, beginning with July 2009, included in this Code.

Ordinance Number	Date	Description	Section	Section this Code
67972	6-30-2008	Annual Operating Budget Plan for the City of St. Louis for Fiscal Year 2008-2009		(not codified)
67973	5-21-2008	Agreement between City and Metropolitan Sewer District for Maintenance of Public Sewer Near 4300 South First Street		(not codified)
67974	5-22-2008	Bonds—Authorizing and Directing the Issuance and sale by the St. Louis Municipal Corporation of its Tax-Exempt Public Safety Sales Tax Leasehold Revenue Bonds (City of St. Louis, Missouri, Lessee), Series 2008A (the "Series 2008A Bonds"), in order to fund certain capital improvements or to pay certain actuarially required contributions in the City's current fiscal year		(not codified)
67975	5-22-2008	Tax and Revenue Anticipation Notes—Providing for the Borrowing of Funds in Anticipation of the Collection of Tax Payments Levied by the City Through the Issuance of Tax and Revenue Anticipation Notes		(not codified)
67976	6- 2-2008	Vacation—at 15-foot wide "T" shaped alley bounded by Mullanphy, 13th, Cass and East 14th St.		(not codified)
67977	6- 9-2008	Airport—Authorizing Execution of First Amendment to Lambert-St. Louis International Airport Parking Facilities Operating Agreement		(not codified)
67978	6- 9-2008	Airport—Authorizing Supplement Appropriation to Annual Budget for fiscal year 2007-2008		(not codified)
67979	6- 9-2008	Airport—Authorizing First Amendment to Section One of the Taxiway D Project Ordinance 67249		(not codified)
67980	6- 9-2008	Airport—Authorizing a Second Supplemental Appropriation from Airport Development Fund into the Airport Engineering Assistance Program for payment of costs for authorized work and services		(not codified)
67981	6- 9-2008	Airport—Authorizing a Third Supplemental Appropriation from the Airport's FAA Land Sale Account into the Noise Mitigation Program Ordinance 64192		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
67982	6- 9-2008	Airport—Authorizing a Third Supplemental Appropriation from the Series A Commercial Paper Construction Account of the Commercial Paper Construction Fund into the Airport Schedule F CIP Project		(not codified)
67983	6- 9-2008	Airport—Authorizing Director of Airports and Comptroller to enter into and Execute Lambert-St. Louis International Airport Restated and Amended Concession Agreement		(not codified)
67984	6-16-2008	Excise—Repealing Section Three of Ordinance 67595 pertaining to the issuance of any package or drink licenses for premises within boundaries of Third Ward Liquor Control District and amending to provide for supplementary exemptions		(not codified)
67985	6-16-2008	Real Property—Sale of 1.73 acres or less of property located in C.B.4627-W and C.B. 4809		(not codified)
67986	6-16-2008	Parks, Recreation and Forestry—Designating Soulard Market as part of the park known as Soulard Playground		(11.44 or 22.30)
67987	6-16-2008	Excise—Prohibition of issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Twentieth Ward Liquor Control District		(not codified)
67988	6-16-2008	Traffic—Repealing Section Two of Ordinance 63774 relating to the speed limit of vehicles and enacting a new ordinance on the same subject	1	17.10.040
67989	6-16-2008	Parking Commission—Appropriation for expenses involving Parking Division assets and debt service expenses of the Parking Division of Treasurer's Office, Kiel Parking Facilities, Argyle Parking Facility, Chouteau Parking Facility, Williams Paper Parking Facility and Central Downtown Parking Facility		(not codified)
67990	6-16-2008	Community Improvement District—Establishment of Riverside Community Improvement District		(not codified)
67991	6-24-2008	Traffic—Establishing a stop site for all northbound and southbound traffic on Sarah Street at the south leg of Kennerly Avenue		(not codified)
67992	6-24-2008	Equitable Relief From Utility Tax Fund—Amending Section Two of Ordinance 60564, codified in paragraph of Section 23.30.030, and enacting in lieu thereof a new section allowing for the assistance in payment of electric cooling service for low income City residents	1	23.30.030 C.

Ordinance Number	Date	Description	Section	Section this Code
67993	6-24-2008	City Housing Conservation Program—repealing Section Seventeen of Ordinance 67914 and enacting a new section on the same subject of implementation	2 Added	25.56.150
67994	6-24-2008	Planned Unit Development—Repealing Ordinance 67802 relating to City Walk on Euclid Planned Unit Development		(not codified)
67995	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the Angelica/N. 25th/ Farrar/N. Florissant Redevelopment Area		(not codified)
67996	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 2937 Sullivan Avenue Redevelopment Area		(not codified)
67997	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 3815 Utah Place Redevelopment Area		(not codified)
67998	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 4046 Flad Avenue Redevelopment Area		(not codified)
67999	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 5237 Vernon Ave. Redevelopment Area		(not codified)
68000	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 2600 Natural Bridge Ave. Redevelopment Area		(not codified)
68001	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for Kosciusko Northeast Redevelopment Area		(not codified)
68002	6-24-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 1353 and 1357 Shawmut Pl. Redevelopment Area		(not codified)
68003	6-24-2008	Redevelopment Plan/Area/Project—Adoption of Redevelopment Plan, Area, Project and authorizing execution of Redevelopment Agreement with 1900 Washington TIF and the adoption of TIF within the Area		(not codified)
68004	6-24-2008	Redevelopment Area—Designating 1900 Washington as Redevelopment Area, Approving a Redevelopment Plan and Adopting TIF within the Area		(not codified)
68005	6-24-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for 1900 Washington Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68006	6-24-2008	Redevelopment Area—Designating Station G Apartments as Redevelopment Area, Approving a Redevelopment Plan and Adopting TIF within the Area		(not codified)
68007	6-24-2008	Redevelopment Plan/Area/Project—Adoption of Redevelopment Plan, Area, Project and authorizing execution of Redevelopment Agreement with Hepfner, Smith, Airhart and Day, Inc. and adopting TIF within the Area		(not codified)
68008	6-24-2008	Tax Increment Revenue Notes—Issuance and Delivery for Station G Apartments Redevelopment Project		(not codified)
68009	6-25-2008	Planned Unit Development—Establishment of City Walk on Euclid Planned Unit Development		(not codified)
68010	6-30-2008	Public Works—Establishing public works and improvement project for the design and construction of Kingshighway Memorial Boulevard Improvement Project		(not codified)
68011	6-30-2008	Authorizing and directing execution of Agreement with U.S. Department of Housing and Urban Development for grant to fund streetscape enhancements including landscaping, pedestrian lighting improvements and selective removal and replacement of sidewalk on Cherokee Street (Cherokee Street Enhancement Project—Phase 2)		(not codified)
68012	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 7401-09 S. Broadway Redevelopment Area		(not codified)
68013	6-30-2008	Streets—Honorarily designating 6th Street as "Georgia's Way"		(not codified)
68014	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 1224 Washington Avenue Redevelopment Area		(not codified)
68015	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 6627, 6919-27 Michigan Ave., and 7024 Pennsylvania Ave. Redevelopment Area		(not codified)
68016	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 7111-19 S. Broadway St. Redevelopment Area		(not codified)
68017	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 807-27 Koeln. And 7406-08 Alaska Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68018	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 8201-25 Minnesota Ave. and 225-29 W. Steins St. Redevelopment Area		(not codified)
68019	6-30-2008	Easement—Granting a non-exclusive driveway easement to the Treasurer acting in his capacity as Supervisor of Parking Meters encumbering a certain parcel of Real Estate in Lot 28 of South Tucker Boulevard in City Block 206		(not codified)
68020	6-30-2008	Real Property—Authorizing the Treasurer acting in his capacity as Supervisor of Parking Meters to sell to the Missouri Valley Conference, a Missouri not for-profit corporation the eastern portion of a parcel of land belonging to the Parking Commission on the 300 block of South 15th St. in City Block 220		(not codified)
68021	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for 4249 Michigan Ave Redevelopment Area		(not codified)
68022	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the Sheridan/Thomas/Webster Redevelopment Area		(not codified)
68023	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 3415 Blair Ave. Redevelopment Area		(not codified)
68024	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 3316 Salena St. Redevelopment Area		(not codified)
68025	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2851 18th St. Redevelopment Area		(not codified)
68026	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2267 Indiana Ave. Redevelopment Area		(not codified)
68027	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2226 Indiana Ave Redevelopment Area		(not codified)
68028	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 5103 Page Blvd. & 5604 Ridge Ave. Redevelopment Area		(not codified)
68029	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 1022-30 Bates Street Redevelopment Area		(not codified)
68030	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 3008 Victor Street Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68031	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 880 E. Taylor Ave. Redevelopment Area		(not codified)
68032	6-30-2008	Redevelopment Plan—Approving a development plan for the Carrie Ave./Bulwer St./Adelaide Ave./W. 3rd St. Redevelopment Area		(not codified)
68033	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 4065 W. Pine Blvd., 214-18 N. Sarah St. Redevelopment Area		(not codified)
68034	6-30-2008	Redevelopment Plan—Approving blighting study and redevelopment plan for the 4243 Laclede Avenue Redevelopment Area		(not codified)
68035	6-30-2008	Vacation at 1) 326.34 Section of Poplar, west of 8th. 2) A 106.38± .03' Section of 7th St. south of Poplar (vacated by Ordinance 65861). 3) 30' wide strip of 7th St. beginning approximately 155 feet south of Poplar (vacated by Ordinance 65861) and continuing 191.34'southwardly		(not codified)
68036	6-30-2008	Streets—Honorarily designating Webster Avenue as "Harold Brewster Place"		(not codified)
68037	7- 7-2008	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on Magnolia Avenue at Alfred Avenue		(not codified)
68038	7- 7-2008	Special Business District—establishing the Tower Grove South Concerned Citizens Special Business District		(not codified)
68039	7- 7-2008	Special Business District Tax Levy—Submitting to qualified voters residing in Tower Grove South Concerned Citizens Special Business District a proposal to continue to levy a tax on real property		(not codified)
68040	7- 7-2008	Water—pertaining to procedures for collection of water bills; repealing Section One of Ordinance 58746, which is presently codified as Section 5.08.050; repealing Section 548.170 of the City of St. Louis Code, enacted under Ordinance 55357 (part) and currently known as Section 23.06.170 ; repealing Section Eleven of Ordinance 67919, which is codified as Section 23.06.130	2 4 6	5.08.050 23.06.170 23.06.130
68041	7- 7-2008	Airport—Ratifying and adopting the accepting and executing a Grant Agreement offered through the Federal Aviation Administration for Project Number 3-29-0085-113-2008 for the reimbursement of direct costs associated with the rehabilitation of Taxiway D (N to M and L to K)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68042	7- 7-2008	Airport—Restating and Amending Concession Agreement between City and BOOKMARK - IN MOTION STL, LLC granting non-exclusive rights for a Multimedia Book Store at the Airport		(not codified)
68043	7- 7-2008	Real Property—Authorizing a Quit Claim Deed for certain surplus Airport property located in St. Louis County		(not codified)
68044	7- 7-2008	Airport—Establishing and authorizing a public work and improvement program ("Building & Environ Projects") at the Airport		(not codified)
68045	7- 7-2008	Airport—Authorizing and directing the execution of the "First Amendment To Equipment Operating Lease Agreement"		(not codified)
68046	7- 7-2008	Zoning—Change zoning in City Block 2700 (3144 Osceola) to "F" Neighborhood Commercial District		(not codified)
68047	7- 7-2008	Zoning—Change zoning in City Block 1809 (1412 Mississippi and 1922 & 1924 Park) to "G" Local Commercial and Office District		(not codified)
68048	7- 7-2008	Zoning—Change zoning in City Block 4398 (840-80 E. Taylor) to 'J" Industrial District		(not codified)
68049	7- 7-2008	Streets—Temporarily close, barricade Penrose at east curb of Dryden Avenue		(not codified)
68050	7- 7-2008	Zoning—Change zoning in City Block 1858 (3115-17, 3119, 3121, 3123, 3125-27, 3133-35, 3137-45, 3147 &3149 Evans Avenue and 1454, 1456, 1458, 1458R, 1460-62 & 1462R Francis Street) to "G" Local Commercial and Office District		(not codified)
68051	7- 7-2008	Zoning—Change zoning in City Block 3965 (4234, 4235, 4238 & 4240 Papin) to the "J' Industrial District		(not codified)
68053	7- 7-2008	Supply—Authorizing the purchase of fire safety equipment and ten ambulances		(not codified)
68054	7- 7-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for City Block 1859 Grand Avenue/Cozens/Evans Area Redevelopment Plan		(not codified)
68055	7- 7-2008	Forest Park—Approving the assignment of the Triple A lease of certain property in Forest Park to Eagle, and approving and authorizing the execution and delivery of an Amended, Restated and Extended Lease Agreement of the same property between the City as lessor and Eagle as lessee		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68056	7- 7-2008	Obligations—Authorizing and directing the execution and delivery of lease certificates of participation obligations of the City, evidencing interests in the right to receive rentals to be made by the City pursuant to an annually renewable lease agreement (the Series 2008 Obligations) in an aggregate principal amount of not to exceed $11,000,000 in order to refinance and refund all of the LCRA Kiel Site Lease Revenue Refunding Bonds, Series 1997A and Series 1997B		(not codified)
68057	7-11-2008	Board of Alderman Executive Secretary—Repealing Section Two of Ordinance 60237, which is codified as Section 3.06.245; and enacting in lieu thereof a new section relating to the same subject of the duties of the executive secretary to the Board of Alderman	2	3.06.245
68058	7- 7-2008	Bonds—Appropriating an amount not to exceed Two Million Four Hundred Thousand Dollars ($2,400,000) from interest earnings in the Leasehold Revenue Bonds, Series 2005 bond fund account to be used for convention center capital improvement projects; and Twenty Four Million Two Hundred Ten Thousand Dollars ($24,210,000) from Leasehold Revenue Bonds, Series 2008 project bond funds for City Wide Capital Improvement Projects		(not codified)
68059	7-17-2008	Vacation—in the easternmost 239.47 feet of the 15 -foot wide east/west alley in City Block 1056 as bounded by Washington, Channing, Locust and Teresa		(not codified)
68060	7-17-2008	Vacation—in Josephine Baker Blvd from Locust to Washington		(not codified)
68061	7-17-2008	Streets—Honorarily designating Cook Avenue as "Haller "Ed" Nutt Way"		(not codified)
68062	7-17-2008	Transportation Sales Tax—Creating the "City Public Transit Sales Tax Trust Fund"; appropriating Ten Million, Five Hundred, Fifty Thousand, Three Hundred Dollars ($10,550,300) from the said sales tax to the Bi-State Development Agency for certain purposes; providing for the payment of such funds during the period July 1, 2008 through June 30, 2009		(not codified)
68063	7-17-2008	Appropriation of Twenty Million, Five Hundred, Forty-Five Thousand Dollars ($20, 545,000) out of the "Transportation Trust Fund" to the Bi-State Development Agency for transportation purposes; requiring an annual evaluation report		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68064	7-17-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4512-14 Manchester Avenue Redevelopment Area		(not codified)
68065	7-28-2008	Redevelopment Plan—Approving a bighting study and redevelopment plan for the 1350-60 S. Kingshighway Redevelopment Area		(not codified)
68066	7-28-2008	Graffiti—Repealing Ordinance 62239 which is codified as Sections 15.128.010, 15.128.020 and 15.128030 of the Revised Code pertaining to graffiti; enacting an ordinance pertaining to the same subject matter	1 Rpld	15.128.010—15.128.030
			2—8 Added	15.128.010—15.128.070
68067	7-28-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2639-45 Shenandoah Ave. Redevelopment Area		(not codified)
68068	7-28-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1927 Ann Ave & 2249 Shenandoah Ave Redevelopment Area		(not codified)
68069	7-28-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 622 Olive St. Redevelopment Area		(not codified)
68070	7-28-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5101 Farlin Ave. Redevelopment Area		(not codified)
68071	7-28-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4658 Rosalie St. Redevelopment Area		(not codified)
68072	7-28-2008	Streets—Honorarily designating Leffingwell Avenue as "Macler C. Shepard Avenue		(not codified)
68073	7-28-2008	Redevelopment Plan—Amending Ordinance 67010 by modifying the terms of the five-year real estate tax abatement for the 6321 Arthur Ave.		(not codified)
68074	7-28-2008	Streets—Honorarily designating the 5000 block of Minerva Avenue as "Rev. Elmer Mitchell Avenue"		(not codified)
68075	7-28-2008	Easement—Authorizing a partial release of easement by and between the City and Bi-State pertaining to a parcel located in City Block 220		(not codified)
68076	7-28-2008	Bonds—Authorizing the St. Louis Municipal Corporation to issue and sell its Leasehold Revenue Bonds, Series 2008 ("the Series 2008 Bonds") to fund the acquisition, construction, repair, improvement, and renovation of the Cervantes Convention Center		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68077	7-28-2008	Parking Improvement Districts—Authorizing a pilot program to test the feasibility of targeted public parking programs in such designated districts; the creation of the Municipal Parking Finance Corporation in connection therewith; actions by the Parking Commission and Supervisor of Parking consistent with modifications to parking policies, rates, fees, charges, and systems		(not codified)
68078	7-28-2008	Vacation—in an irregular width portion of Enright from Grand westward approximately 170.45 feet to a point and adjacent to City Blocks 228-NB and 2289		(not codified)
68079	7-28-2008	Community Improvement District—Establishing the Syndicate Trust Community Improvement District		(not codified)
68080	7-28-2008	Redevelopment Plan/Area/Project—Designating the LaSalle Building Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the LaSalle Building Special Allocation Fund		(not codified)
68081	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for LaSalle Building Redevelopment Project		(not codified)
68082	7-28-2008	Redevelopment Agreement—Authorizing the Execution of a Redevelopment Agreement between the City and LaSalle Development, LLC.		(not codified)
68083	7-28-2008	Redevelopment Plan/Area/Project—Designating the 1001 Locust Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the 1001 Locust Special Allocation Fund		(not codified)
68084	7-28-2008	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Kinloch TIF, Inc.		(not codified)
68085	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the 1001 Locust Redevelopment Project		(not codified)
68086	7-28-2008	Redevelopment Plan/Area/Project—Designating the South Carondelet District #1 Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the South Carondelet District #1 Special Allocation Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68087	7-28-2008	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and 8000 Michigan TIF, Inc.		(not codified)
68088	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the South Carondelet District #1 Redevelopment Project		(not codified)
68089	7-28-2008	Redevelopment Plan/Area/Project—Designating the South Carondelet District #2 Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the South Carondelet District #2 Special Allocation Fund		(not codified)
68090	7-28-2008	Redevelopment Agreement—Authorizing the Execution of a Redevelopment Agreement between the City and Carondelet, TIF Inc.		(not codified)
68091	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the South Carondelet District #2 Redevelopment Project		(not codified)
68092	7-28-2008	Redevelopment Plan/Area/Project—Designating the South Carondelet District #3 Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the South Carondelet District #3 Special Allocation Fund		(not codified)
68093	7-28-2008	Redevelopment Agreement—Authorizing the Execution of a Redevelopment Agreement between the City and Carondelet, TIF Inc.		(not codified)
68094	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the South Carondelet District #3 Redevelopment Project		(not codified)
68095	7-28-2008	Redevelopment Area—Approving an amendment to the Tax Increment blighting analysis and Redevelopment Plan and Project for the 600 Washington Redevelopment Area		(not codified)
68096	7-28-2008	Redevelopment Agreement—Authorizing an amendment to Redevelopment Agreement between the City and 1007/1015 Washington, LLC		(not codified)
68097	7-28-2008	Redevelopment Plan/Area/Project— Approving an amendment to the City Hospital TIF Redevelopment Plan; designating three redevelopment project areas and a Redevelopment Project with respect to Redevelopment Project Area 2; Adopting Tax Increment Financing within the Redevelopment Area 2		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68098	7-28-2008	Redevelopment Agreement—Authorizing the Execution of a Redevelopment Agreement between the City and City Hospital Development III, LLC and City Hospital Development IV, LLC.		(not codified)
68099	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the City Hospital RPA 2 Redevelopment Project		(not codified)
68100	7-28-2008	Redevelopment Area—Designating Laurel/555 Washington as Redevelopment Area, approving a Redevelopment Plan and Adopting TIF within the Area; establishing Special Allocation Fund		(not codified)
68101	7-28-2008	Redevelopment Plan/Area/Project—Adoption of Redevelopment Plan, Area, Project and authorizing execution of Redevelopment Agreement with Laurel TIF and the adoption of TIF within the Area		(not codified)
68102	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the Laurel/555Washington Redevelopment Project		(not codified)
68103	7-28-2008	Redevelopment Agreements—Authorizing amendments to the TIF Redevelopment Agreements with 4100 Development, Inc., UVA Development Company, Soulard Apartments, L.P.		(not codified)
68104	7-28-2008	Redevelopment Area—Designating South Carondelet District #4 as Redevelopment Area, Approving a Redevelopment Plan and Adopting TIF within the Area		(not codified)
68105	7-28-2008	Redevelopment Plan/Area/Project—Adoption of Redevelopment Plan, Area, Project and authorizing execution of Redevelopment Agreement with Carondelet TIF and the adoption of TIF within the Area		(not codified)
68106	7-28-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for South Carondelet District #4 Redevelopment Plan		(not codified)
68107	7-28-2008	Community Improvement District—Establishment of the Grove Community Improvement District		(not codified)
68108	9-24-2008	Civic Center Vending District—Amending Ordinance 65061 to designate boundaries and establishing rules and regulations for the district	1	8.108A.030 I.
			2 Added	8.108A.315

Ordinance Number	Date	Description	Section	Section this Code
68109	9-29-2008	HIPAA—Repealing Ordinance 66281 and enacting in lieu thereof a new ordinance providing for compliance by the City with both the HIPAA Standards for Privacy of Individually Identifiable Health Information and the HIPAA Security Standards for the Protection of Electronic Protected Health Information		(not codified)
68110	10- 6-2008	Airport—Authorizing a public work and improvement program at the Airport		(not codified)
68111	10- 6-2008	Airport—Authorizing the Ninth Amendment to the Indenture of Lease (AL-60) between the City and Lambert Field Fueling Facilities Corporation		(not codified)
68112	10- 6-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-248 between the City and Vanguard Rental Car USA, d/b/a Alamo and National Rent A Car		(not codified)
68113	10- 6-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-249 between the City and Avis Rent A Car System, Inc.		(not codified)
68114	10- 6-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-250 between the City and Budget Rent A Car System		(not codified)
68115	10- 6-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-253 between the City and Missouri Rental & Leasing, Inc., d/b/a Dollar Rent A Car		(not codified)
68116	10- 6-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-254 between the City and The Hertz Corporation		(not codified)
68117	10- 6-2008	Airport—Authorizing the Sabreliner Termination Agreement; authorizing Lease Agreement AL-205 with McDonnell Douglas Corporation; authorizing Lease Agreement AL-542 between the City and Airport Terminal Services, Inc.		(not codified)
68118	10-10-2008	License Collector's Employees—Repealing Ordinance 67813 relating to the appointment and rates of compensation of certain employees of the License Collector enacting in lieu thereof a new ordinance dealing with the same subject matter	Rpld	4.28.010—4.28.110
			1—12Added	4.28.010—4.28.120

Ordinance Number	Date	Description	Section	Section this Code
68119	10-10-2008	Circuit Attorney's Employees—Amending Ordinance 67809 relating to the Office of the Circuit Attorney allocating the positions established by Section 56.450, R.S.Mo. to classes with grades and a schedule setting minimum and maximum salaries for such grades	1 Rpld	4.48.010—4.48.060
			2, Added	4.48.010, 4.48.020,
			3—5,	4.48.030—4.48.050,
			5(A)	4.48.060,
			6	4.48.070
68120	10-10-2008	Parking Division Employees—Amending Ordinance 67806 relating to the position classifications and salaries of the Parking Division employees, and to enact in lieu thereof certain new sections relating to the same subject	2	4.30.010
			3	4.30.012
			4	4.30.015
			5—8	4.30.020—4.30.023
			9	4.30.024, 9.30.025
68121	10-10-2008	Treasurer's Office—Amending Ordinance 67805 relating to the position classifications and salaries of the Treasurer's Office and to enact in lieu thereof certain new sections relating to the same subject matter	2	4.26.015
			3—6	4.26.2020—4.26.023
			7, 8	4.26.040, 4.26.050
			9	4.26.070
			10	4.26.060
68122	10-10-2008	Medical Examiner and Morgue Employees—Repealing Ordinance 67811; authorizing a compensation plan, terms and conditions of employment, benefits, leaves of absence, and a Deferred Compensation Plan	1—10	4.54.010—4.54.100
			11	4.54.105
			12—19	4.54.110—4.54.180
			20	4.54.185
			21	4.54.187
			22—25	5.54.190—5.54.220
68123	10-10-2008	Sheriff's Office Employees—Repealing Ordinance 67812 establishing the salaries of employees in the Sheriff's Office and enacting in lieu thereof a new Ordinance fixing the annual rate of compensation of command personnel and deputies	1 Rpld	4.36.010—4.36.140
			2—16Added	4.36.010—4.36.150
68124	10-10-2008	Recorder of Deeds Employees—Repealing Ordinance 67804 pertaining to the employees of the Office of the Recorder of Deeds and enacting in lieu thereof a new ordinance pertaining to the same subject matter	1 Rpld	4.34.010—4.34.090
			2—11Added	4.34.010—4.34.100

Ordinance Number	Date	Description	Section	Section this Code
68125	10-10-2008	Collector of Revenue's Employees—Repealing Ordinance 67808 (relating to the appointment of and salaries of certain employees in the Collector of Revenue's Office and enacting in lieu thereof a new ordinance pertaining to the same subject matter	1 Rpld	4.44.010—4.44.060
			2—8 Added	4.44.010—4.44.070
68126	10-10-2008	Classified Service Employees—Repealing Ordinance 67922 pertaining to a compensation plans, terms of employment, benefits, and authorization for deferred compensation and enacting in lieu thereof a new ordinance pertaining to the same subject matter	1—27	4.10.010—4.10.270
68127	10-14-2008	Cruising—Prohibiting cruising and establishing temporary designated areas	1—5 Added	17.55.010—17.55.050
68128	10-20-2008	Authorizing the Mayor to submit a 2009 Annual Action Plan to HUD as required for funding applications under various Federal grant programs		(not codified)
68129	10-24-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-252 between the City and Enterprise Leasing, Inc., d/b/a Enterprise Rent-A-Car		(not codified)
68130	10-26-2008	Noise Regulation—Repealing Ordinance 64566 (15.50); enacting in lieu thereof a new ordinance pertaining to the same subject matter	2—10	15.51.010—15.51.090
68131	10-26-2008	Excise—Repealing Ordinance 67925 and in lieu thereof enacting a new ordinance prohibiting liquor licenses for any currently non-licensed premises within the boundaries of the Fourth Ward Liquor Control District		(not codified)
68132	10-27-2008	Redevelopment Plan—Approving a blighting study and Redevelopment Plan for 3838 Geyer Avenue Redevelopment Area		(not codified)
68133	10-27-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Tower Grove East Scattered Sites III Redevelopment Area		(not codified)
68134	10-27-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2347 Virginia Avenue Redevelopment Area		(not codified)
68135	10-27-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Genevieve Ave./Beacon Ave./Davison Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68136	10-31-2008	Zoning—Change zoning in City Block 2426 (4218 Grove & 4247 N. Florissant) from "B" Two-Family Dwelling District and the "G" Local Commercial and Office District to the "C" Multiple Family Dwelling District		(not codified)
68137	10-31-2008	Regulation and control of motor vehicle idling—Repealing Section Fourteen, Subsection D of Ordinance 65645 and enacting in lieu thereof a new ordinance pertaining to the same subject matter	2	11.34.150 D.
68138	10-31-2008	Planning Commission and the Preservation Board—Repealing Section Seven, Subsection 3 of Ordinance 64687 and repealing Section Seven, Subsection E of Ordinance 64689 and enacting in lieu thereof new subsections pertaining to the same subject matter providing for regular but not necessarily monthly meetings	1	3.48.060 C.
			2	24.08.030 E.
68139	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4301-03 Manchester Avenue Redevelopment Area		(not codified)
68140	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6345 Gratiot St., 700 & 852 Spring Ave. Redevelopment Area		(not codified)
68141	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4517 and 4521 Chouteau Avenue Redevelopment Area		(not codified)
68142	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4422 Chouteau Avenue Redevelopment Area		(not codified)
68143	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6803 Scanlan Avenue Redevelopment Area		(not codified)
68144	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4036 Connecticut St. Redevelopment Area		(not codified)
68145	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4978 Odell St. Redevelopment Area		(not codified)
68146	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2710-18 Macklind Ave. Redevelopment Area		(not codified)
68147	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5021 Cabanne Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68148	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 245 Union Blvd. Redevelopment Area		(not codified)
68149	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2143 Victor St. Redevelopment Area		(not codified)
68150	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6173-75 Pershing Ave. Redevelopment Area		(not codified)
68151	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6101 Elizabeth Avenue Redevelopment Area		(not codified)
68152	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4188-90 Sacramento Ave. Redevelopment Area		(not codified)
68153	11- 3-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the St. Ferdinand/N. Vandeventer Ave./N. Sarah Ave. Redevelopment Area		(not codified)
68154	11-10-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1014-38 Oakview Place. Redevelopment Area		(not codified)
68155	11-10-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5550 Fyler Redevelopment Area		(not codified)
68156	11-10-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the McPherson Scattered Sites Redevelopment Area		(not codified)
68157	11-10-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Fairground/Hyde Park Scattered Sites Redevelopment Area		(not codified)
68158	11-10-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 405-15 N. 7th St. & 700 Washing Ave. Redevelopment Area		(not codified)
68159	11-10-2008	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on Maple Avenue at the east curb line of Clarendon Avenue		(not codified)
68160	11-10-2008	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on Vernon Avenue at the east curb line of Union Blvd.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68161	11-10-2008	Airport—Accepting and executing a grant agreement through the Federal Aviation Administration for Project Number 3-29-0085-108-2008 for the reimbursement of direct costs associated with the replacement of Runway 12L/30R Keel Section (Center 50')		(not codified)
68162	11-10-2008	Airport—Authorizing Director of Airports and Comptroller to enter into and Airport Restated and Amended Concession Agreement (AL-435) with Vending Concession, LLC		(not codified)
68163	11-18-2008	Vacation—in 15-foot wide north/south alley I City Block 341 as bounded by Benton, 9th, North Market and 10th		(not codified)
68164	11-18-2008	Vacation—in an alley varying in width from 12.00 feet to 13.42 feet extending from Locust southwardly 105 feet to the 15-foot wide east/west alley in City Block 280 as bounded by Locust, 10th, Olive and 11th Streets		(not codified)
68165	11-18-2008	Streets—Honorarily designating Sarah Street as "Cheramara Motley Street"		(not codified)
68166	11-18-2008	Vacation—in 1) Mason from Hickory southwardly 221.5' ± 13.5' 2) 15' wide east/west alley in City Block 152 bounded by Hickory, 6th, I-44 and Mason 3) Sixth from Hickory southwardly 115'		(not codified)
68167	11-18-2008	Authorizing a lease agreement with JM Management, LLC to lease property located in City Block 516 for a period of Ten years for the purposes of conducting operations of the City Board of Election Commissioners		(not codified)
68168	11-18-2008	Traffic—Establishing a stop site for all northbound traffic traveling on Cora Avenue at Cote Brillante Avenue		(not codified)
68169	11-18-2008	Traffic—Establishing stop site for all eastbound and westbound traffic traveling on Pestalozzi Street at Michigan Avenue		(not codified)
68170	11-18-2008	Authorizing a lease of City-owned property located in City Block 3178 to Speed Through Power LLC for a period of Twenty Years		(not codified)
68171	11-18-2008	Supplemental Appropriation to the Annual Budget for the Department of Parks, Recreation and Forestry for One Million Two Hundred Thousand Dollars		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68172	11-18-2008	Real Property—Authorizing a Quit Claim Deed unto Kevin T. King City-owned property in City Block 1254 which property is a side lot front 9 feet 6 inches on Carroll Street		(not codified)
68173	11-18-2008	Vacation—Repealing Ordinance No. 65110 which provided for the vacation of 3rd Street between Miller Street and Rutger Street adjoining City Block 202 and 692		(not codified)
68174	11-24-2008	Zoning—Changing from the "A" Single-Family Dwelling District and the "F" Neighborhood Commercial District to the "G" Local Commercial and Office District in City Block 5245 (4852, 4858, 4860 & 4862 Austria Street, 4857, 4861 & 4865 Germania and 7320 Gravois Avenue)		(not codified)
68175	11-24-2008	Circuit Attorney's Office—Amending Ordinance No. 68119 addressing the positions established by Section 56.540.R.S.Mo and correcting a clerical error in the official bi-weekly pay schedule for classification grades	2	4.48.010
68176	11-24-2008	Authorizing a Substantial Amendment to the 2008 Annual Action Plan to HUD as required to apply for Neighborhood Stabilization Program Entitlement Funding and an application to the State for the purpose of securing State NSP Funding		(not codified)
68177	11-24-2008	Airport—Authorizing a "Third Amendment" to the McDonnell Douglas Restated and Amended Lease Agreement AL-154		(not codified)
68178	11-24-2008	Airport—Authorizing the First Amendment to the On-Airport Passenger Vehicle Rental Concession Agreement AL-251 between the City and C&J Rental Inc., d/b/a Thrifty Car Rental		(not codified)
68179	11-24-2008	Airport—Authorizing Public Communications Services Concession Agreement (AL-434) between the City and Power Station LLC		(not codified)
68180	11-24-2008	Tax Increment Revenue Notes—Amending Ordinance No. 67060 pertaining to the Issuance and Delivery of Tax Increment Revenue Notes for the Grand Center Redevelopment Project and authorizing a First Supplemental Trust Indenture and Note Purchase Agreement		(not codified)
68181	11-24-2008	Redevelopment Plan/Area/Project—Designating the Chemical Building Redevelopment area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68182	11-24-2008	Redevelopment Agreement—Authorizing the Execution of a Redevelopment Agreement between the City and Crossland Capital Partners, Inc.		(not codified)
68183	11-24-2008	Redevelopment Plan/Area/Project —Designating the 4900 Manchester Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area		(not codified)
68184	11-24-2008	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and 4900 Manchester TIF, Inc		(not codified)
68185	12- 1-2008	Check-Cashing and Short-Term Loan Establishments—Repealing Ordinance 64836 and 64837; amending Sections 1 and 2 of 64836 codified in Section 26.08.101 and enacting in lieu thereof a new section defining check-cashing establishments; amending Sections 1 and 2 of Ordinance 64837 codified in Section 26.08.384 of the Revised Code and enacting in lieu thereof a new section pertaining to defining short-term loan establishments	2	26.08.101
			3	26.08.384
68186	12- 1-2008	Repealing Ordinance 68009 creating City Walk on Euclid Planned Unit Development District		(not codified)
68187	12- 1-2008	Planned Unit Development—Establishment of City Walk on Euclid Planned Unit Development		(not codified)
68188	12- 1-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for Chemical Building Redevelopment Project		(not codified)
68189	12- 1-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for 4900 Manchester Redevelopment Project		(not codified)
68190	12- 1-2008	Redevelopment Plan/Area/Project —Designating the 3693 Forest Park Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area		(not codified)
68191	12- 1-2008	Redevelopment Plan/Area/Project —Designating the 374 South Grand Redevelopment Areas; approving Redevelopment Plans; Adopting Tax Increment Financing within the Redevelopment Area		(not codified)
68192	12- 1-2008	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Union Square Enterprises, LLC, Inc for the 374 South Grand Development Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68193	12- 1-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for 374 South Grand Redevelopment Project Area 1		(not codified)
68194	12- 1-2008	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Geyer Avenue Developments, LLC		(not codified)
68195	12- 1-2008	Tax Increment Revenue Notes—Issuance and Delivery of Notes for 374 South Grand Redevelopment Project Area 2		(not codified)
68196	12- 1-2008	Cooperation Agreement—Supporting a Freight Hub Initiative and a Commercial Hub Initiative between China and the Midwest		(not codified)
68197	12- 8-2008	Bonds—Authorizing and Directing the Issuance and sale by the City of St. Louis of its Airport Revenue Bonds, Series 2008A in order to fund the cost of the purchase, construction, extension and improvement of the Airport; to reimburse the City for certain prior Airport capital expenditures, to fund capitalized interest, and to pay all or a portion of the Airport's outstanding commercial paper; and the issuance of its Airport Revenue Refunding Bonds, Series 2008B		(not codified)
68198	12- 8-2008	Special Business District—Establishing Shaw Special Business District subject to the approval of the voters		(not codified)
68199	12- 8-2008	Special Business District Tax Levy—Submitting to the qualified voters residing in the Shaw Special Business District a proposal to levy a tax on the real property located in said district		(not codified)
68200	12- 8-2008	Special Business District Tax Levy—Repealing Ordinance 63777 as amended by Ordinance 64546, and in lieu thereof a new paragraph is enacted extending the period of time during which the Cathedral Square Special Business District shall be permitted to collect the tax within the district		(not codified)
68201	12- 8-2008	Special Business District Tax Levy—Submitting to the qualified voters residing in the Cathedral Square Special Business District a proposal to continue to levy a tax on the real property located in said district for ten years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68202	12- 8-2008	Special Business District Tax Levy—Repealing paragraph (f) of Section Two of Ordinance 62622 as amended by Ordinance 63840 as amended by Ordinance 64935 and in lieu thereof a new paragraph is enacted extending the period of time during which the Central West End North Special Business District shall be permitted to collect the tax within the district		(not codified)
68203	12- 8-2008	Special Business District Tax Levy—Submitting to the qualified voters residing in the Central West End North Special Business District a proposal to continue to levy a tax on the real property located in said district for ten years		(not codified)
68204	12-12-2008	Community Improvement District—Establishing the Laclede's Landing Community Improvement District		(not codified)
68205	12-12-2008	Community Improvement District—Amending the previously established Orpheum Theatre Community Improvement District		(not codified)
68206	12-12-2008	Tax Increment Financing Redevelopment Agreement—Authorizing and directing the execution of an amendment to the Argyle Tax Increment Redevelopment Agreement between the City and the Treasurer in his capacity as Supervisor of Parking Meters		(not codified)
68207	12-12-2008	Public Works and Improvement Projects—Establishing three projects for the design and construction of Congestion Mitigation Air Quality Projects involving traffic signal interconnection and upgrades: the Vandeventer Avenue CMAQ Project, West Florissant CMAQ Project, and the Lindell/Olive CMAQ Project		(not codified)
68208	12-12-2008	Real Property—Ratifying the purchase of real property located in City Block 4878 from Forest West Properties, Inc.		(not codified)
68209	12-15-2008	Streets—Honorarily designating the 5300 block of Wells Avenue as "Mr. Lee "The Rose Man" Nixon Way"		(not codified)
68210	12-15-2008	Vacation in alleys in City Block 1033 as bounded by Martin Luther King Drive, Cardinal Ave., School St. and Compton Ave.		(not codified)
68211	12-15-2008	Vacation in 1) Second Street from Palm to Branch; 2) Palm Street beginning 130 feet east of Broadway and continuing eastwardly approximately 368 feet to a point on Palm previously vacated by Ordinance 45289		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68212	12-15-2008	Streets—Honorarily designating Howard Street as "Jack Patel Street"		(not codified)
68213	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2813-15 Arsenal Street Redevelopment Area		(not codified)
68214	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the3555-59 California Ave. & 2811-15 Miami Street Redevelopment Area		(not codified)
68215	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Union Blvd./Terry Ave. Redevelopment Area		(not codified)
68216	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2208 Victor St. Redevelopment Area		(not codified)
68217	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4022 Flora Pl. Redevelopment Area		(not codified)
68218	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3834 Botanical Ave. Redevelopment Area		(not codified)
68219	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2203-09 Lawrence St. Redevelopment Area		(not codified)
68220	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3815 Cleveland Ave. and 3817 Russell Ave. Redevelopment Area		(not codified)
68221	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3458 S. Spring Ave. Redevelopment Area		(not codified)
68222	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 7715-17 Minnesota Ave. and 7706-12 Alabama Ave. Redevelopment Area		(not codified)
66823	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 205 N. 18th Street Redevelopment Area		(not codified)
68224	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5240 Oakland Avenue Redevelopment Area		(not codified)
68225	12-22-2008	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4525 Wichita Avenue and 4531 Arco Avenue Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68226	1-12-2009	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on N. 23rd Street at the north curb line of Newhouse Avenue		(not codified)
68227	1-12-2009	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on Mallinckrodt Streets west of North Florissant Avenue		(not codified)
68228	1-12-2009	Airport—Ratifying and adopting the accepting and executing a Grant Agreement offered through the Federal Aviation Administration for Project Number 3-29-0085-114-2008 for the reimbursement of direct costs associated with the rehabilitation of Taxiway D (N to M and L to K) Phase 3		(not codified)
68229	1-12-2009	Airport—Authorizing a Third Supplemental Appropriation from Airport Development Fund into the Airport Engineering Assistance Program for payment of costs for authorized work and services		(not codified)
68230	1-12-2009	Airport—Authorizing the acceptance and execution of a grant agreement offered by the Missouri Highways and Transportation Commission for the development of air service improvements at the Airport for		(not codified)
68231	1-12-2009	Real Property—Authorizing the purchase of certain property located in St. Louis County from Drury Displays		(not codified)
68232	1-12-2009	BPS—Allowing the President of BPS to enter into an agreement with the Missouri Department of Transportation to fund Surface Transportation Workforce Development, Training and Education		(not codified)
68233	1-21-2009	Vacation in alleys in an excess portion of Biddle between First and Lewis adjacent to City Block 20		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68234	1-21-2009	Vacation in 1) Picker Street from 14th westward to I-44 ROW, 2) Hoehn Street from Picker Street southwardly approximately 165 feet to previously vacated Hoehn, Ordinance 56710, 3) the westernmost 10' wide north-south alley in CB 820-N, Lots 6 & 7 from Lafayette to the east-west alley in CB 820-N as bounded by Lafayette, 14th, Picker and I-44 ROW, 4) the easternmost 10'wide north-south alley in 820-N Trium's Addition, from Lafayette to the east-west alley in CB 820-N as bounded by Lafayette, 14th, Picker and I-44 ROW, 5)the 10' wide east west alley in CB 820-N as bounded by Lafayette, 14th, Picker and I-44 ROW, 6) the southern most 10' wide north-south alley in CB 820-N as bounded by Lafayette, 14th, Picker and I-44 ROW, 7) the 10' wide north-south alley in CB 820-N as bounded by Picker, 14th, 1-44 and Hoehn		(not codified)
68235	1-21-2009	Traffic—Establishing a four way stop site at the intersection of Magnolia Avenue and Michigan Avenue		(not codified)
68236	1-21-2009	Special Business District—Repealing Section One of Ordinance 63780, and in lieu thereof a new Section One is enacted enlarging the area of the Central West End Southeast Special Business District; repealing paragraph (f) of Section Two of Ordinance 63780 as amended by Ordinance 64550, and in lieu thereof a new paragraph is enacted extending the period of time during which the Central West End Southeast Special Business District shall be extended		(not codified)
68237	1-21-2009	Special Business District Tax Levy—Submitting to qualified voters residing in Central West End Southeast Special Business District a proposal to continue to levy a tax on real property		(not codified)
68238	2- 2-2009	Vacation in Cockrill Street between Ella Avenue and Minerva Avenue		(not codified)
68239	2- 2-2009	Streets—Honorarily designating Elliott Avenue as "Rev. Joe L. Bryant Avenue"		(not codified)
68240	2- 2-2009	Streets—Honorarily designating Delmar "Barack Obama Boulevard"		(not codified)
68241	2- 2-2009	Zoning—Changing zoning of property in City Block 562 (1200-36 Hadley Street, 1104 O'Fallon Street, 1201-23 N. 11th Street & 1103-19 Biddle Street) from "J" Industrial District to the "D" Multiple-Family Dwelling District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68242	2- 2-2009	Traffic—Establishing two stop sites for all east-bound and westbound traffic traveling on Maple Avenue between 5651 and 5651 Maple Avenue		(not codified)
68243	2- 2-2009	Zoning—Changing zoning of property in City Block 1430 (2646 Michigan) from "F" Neighborhood Commercial District to the "B" Twp-Family Dwelling District		(not codified)
68244	2- 2-2009	Airport—Authorizing a Fourth Supplemental Appropriation from the Airport's FAA Land Sale Account into the Noise Mitigation Program for the payment of costs authorized therein		(not codified)
68245	2- 2-2009	Traffic—Establishing two stop sites for all east bound traffic traveling on Lotus Avenue between Kingshighway Boulevard and Union Boulevard		(not codified)
68246	2- 2-2009	Streets—Repealing Ordinance 66251, codified as Section 20.30.140(A)(B) of the Revised Code, pertaining to street excavation permit fees, and enacting in lieu a new subject on the same subject matter which increases the amount of the permit fees	1, 2	20.30.140
68247	2- 2-2009	Redevelopment Plan/Area/Project—Amending the Automobile Row Redevelopment Project by removing from the redevelopment plan all of the properties from Redevelopment Project Area 2 and 3029-3033 Locust St. from Redevelopment Project Area 1		(not codified)
68248	2- 2-2009	Redevelopment Plan/Area/Project—Designating the Midtown Lofts Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Midtown Lofts Special Allocation Fund		(not codified)
68249	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Midtown TIF Company, Inc for the Midtown Lofts Redevelopment Area		(not codified)
68250	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for Midtown Lofts Redevelopment Project		(not codified)
68251	2- 9-2009	Redevelopment Plan/Area/Project—Designating Reo Lofts Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Reo Lofts Special Allocation Fund		(not codified)
68252	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Midtown TIF Company, Inc. Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68253	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for Reo Lofts Redevelopment Project		(not codified)
68254	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for Sky Wheel St. Louis Redevelopment Project		(not codified)
68255	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Sky Wheel St. Louis, LLC		(not codified)
68256	2- 9-2009	Redevelopment Plan/Area/Project—Designating Sky Wheel St. Louis Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Sky Wheel St. Louis Special Allocation Fund		(not codified)
68257	2- 9-2009	Vacation in the eastern 25 feet of Spring from Gratiot northwardly approximately 249.65 feet ± 3.93 feet and adjacent to City Block 2185B		(not codified)
68258	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the 3150 South Grand Redevelopment Project		(not codified)
68259	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and 3150 Development, Inc.		(not codified)
68260	2- 9-2009	Redevelopment Plan/Area/Project—Designating the 3150 South Grand Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the 3150 South Grand Special Allocation Fund		(not codified)
68261	2- 9-2009	Tax Increment Revenue Notes—Amending TIF Note Ordinances 66007, 66008. 66009, '66010, 66196, 66414, 66587, 666666, 67055, 67067, 67071, 67314, 67458, 67463, 67480, and 67678 as concerns the redemption and payment of principal and interest on the TIF notes		(not codified)
68262	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the 1225 Washington Redevelopment Project		(not codified)
68263	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and KHM TIF Holdings, Inc.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68264	2- 9-2009	Redevelopment Plan/Area/Project—Designating the 1225 Washington Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the 1225 Washington Special Allocation Fund		(not codified)
68265	2- 9-2009	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 100 North 4th St. Redevelopment Area		(not codified)
68266	2- 9-2009	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 916 Olive St. Redevelopment Area		(not codified)
68267	2- 9-2009	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3517 & 3531 Bingham Ave. Redevelopment Area		(not codified)
68268	2- 9-2009	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Union Blvd./I-70/ W. Florissant Ave. Redevelopment Area		(not codified)
68269	2- 9-2009	Vacation in a portion of the 15-foot wide north-south alley beginning approximately 66 feet south of Mullanphy and extending southwardly approximately 149.50 feet in City Block 606 bounded by Mullanphy, Broadway, Cass and Seventh		(not codified)
68270	2- 9-2009	Vacation in Carroll St. from Dillon St. to St. Ange Ave.; St. Ange Ave. from 14th St. to Carroll St. and an irregular section of 14th St.		(not codified)
68271	2- 9-2009	Vacation I Polk from Steins northeastwardly approximately 260.5 feet ± 29.5 feet and abutting City Blocks 3087 and 3088		(not codified)
68272	2- 9-2009	Streets—Honorarily designating the 6200-6400 blocks South Kingshighway Boulevard as "Gregory J. Erson Boulevard"		(not codified)
68273	2- 9-2009	Streets—Honorarily designating the 1300 block of Taylor Avenue as "Elder Samuel Moore Sr. Lane"		(not codified)
68274	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the Ford Building Redevelopment Project		(not codified)
68275	2- 9-2009	Redevelopment Plan/Area/Project—Designating Ford Building Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Ford Building Special Allocation Fund		(not codified)
68276	2- 9-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the Choteau Crossing Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68277	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Chouteau Crossing TIF Inc.,		(not codified)
68278	2- 9-2009	Redevelopment Plan/Area/Project—Designating the Chouteau Crossing Redevelopment Area; approving a Redevelopment Plan; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Chouteau Crossing Special Allocation Fund		(not codified)
68279	2- 9-2009	Streets—Honorarily designating the 4500 block of St. Louis Avenue as "Jessie Taylor Avenue"		(not codified)
68280	2- 9-2009	Streets—Honorarily designating Eleventh Street as "Barbara Abeln Street"		(not codified)
68281	2- 9-2009	Streets—Honorarily designating Howard Street as "Jeff Patel Street"		(not codified)
68282	2- 9-2009	Vacation in Benton from Broadway eastwardly 150 feet		(not codified)
68283	2- 9-2009	Vacation in an irregular width portion of 15-foot wide east-west alley and the northern 95 feet of the 15-foot wide north-south alley in City Block 5245 as bounded by Gravois, Austria, Stolle, and Germania		(not codified)
68284	2- 9-2009	Personnel—Establishing a City Health Insurance Committee to recommend programs concerning health/medical insurance coverage; repealing Ordinance 67665; and authorizing the Director of Personnel to engage the services of a contractual health insurance consultant recommended by the City Health Committee	2—13	4.10.225
68285	2- 9-2009	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on Emma Avenue at the east curb line of Park Lane		(not codified)
68286	2- 9-2009	Streets—Directing the Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on Oakland Avenue at the east curb line of Kingshighway Boulevard		(not codified)
68287	2- 9-2009	Redevelopment Agreement—Authorizing the execution of a Redevelopment Agreement between the City and Ford Building TIF, Inc.		(not codified)
68288	2- 9-2009	Terminating the Modesa Development Plan for Ballpark Village, the development project and the designation of the development area; dissolving the special allocation fund therefore		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68289	2- 9-2009	Development Agreement—Authorizing the execution of Development Agreement between the City and Ballpark Village Development Corporation		(not codified)
68290	2- 9-2009	Authorizing the City to assign State and local Modesa Revenues, dedicated municipal revenues, contractually pledged city revenues, CID revenues and TDD revenues attributable to the Ballpark Development area for the purpose of paying the principal and interest on certain bonds to be issued by the Industrial Development Authority		(not codified)
68291	2- 9-2009	Community Improvement District—Approving an amended petition of Gateway Stadium, LLC to create the Ballpark Village Community Improvement District		(not codified)
68292	2- 9-2009	Transportation Project Agreement—Authorizing the execution of Transportation Project Agreement between the City, Ballpark Villages Redevelopment Corporation and the Ballpark Village Transportation Development District		(not codified)
68293	2- 9-2009	Development Plan/Area/Project—Designating the area generally bounded by Eighth Street on the West, Walnut Street on the North, South Broadway on the East, and Clark Street on the South as a Development Area; approving a Development Plan; Adopting Development Financing within the Development Area; establishing a Special Allocation Fund		(not codified)
68294	2-19-2009	Port Authority Commission—Authorizing a lease agreement between the City and Slay Bulk Terminals, Inc., for certain land on the Unimproved Wharf and for mooring privileges for a period of ten years		(not codified)
68295	2-16-2009	Excise—Prohibition of issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Twentieth Ward Liquor Control District for a period of three years except for the transfer of existing licenses and the issuance of a drink license to persons operating a restaurant with at least 50% food sales at a previously non-licensed or operating a premises with a Cherokee Street address from the west curb line of Iowa Avenue to the east curb line of Nebraska Avenue		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68296	2-16-2009	Special Events—Establishing a Special Events Office as a division of the Department of Public Safety; providing procedures for the issuance of special events permits; authorizing regulations; establishing a Special Events Advisory Committee	1—11Added	3.45.010—3.45.110
68297	2-16-2009	Supply—repealing the current Section 5.58.160 of the Revised Code, and enacting in lieu thereof a new Section 5.58.160 pertaining to the same subject matter and providing the Supply Commissioner discretion in determining whether to require performance bonds	1	5.58.160
68298	2-16-2009	Easement—Authorizing a permanent easement in City Block 190 for MSD to build and maintain a sewer or sewers		(not codified)
68299	2-16-2009	Vehicles and Traffic—Amending Section (B) of Ordinance 60935 pertaining to the non-emergency removal of vehicles and the removal of vehicles parked in the direction of travel; codified in Section 12.56.020 (B) of the Revised Code, and enacting in lieu thereof a new section pertaining to the same subject matter	1	17.56.020 B.
68300	2-16-2009	BPS—Authorizing the 2009 St. Louis Works and the 50/50 Sidewalk Programs City wide; appropriating $5,000,000.00 from the Street Improvement Fund		(not codified)
68301	2-16-2009	Authorizing the application for funding under the HUD Office of Healthy Homes and Lead Hazard Control being offered pursuant to a Federal Fiscal Year 2008 Notice of Funding Availability for the Lead Hazard Reduction Demonstration Grant and the Lead Hazard Control Grant Programs; authorizing the Mayor and the Comptroller to enter into and execute agreement with HUD for these funds for the purpose of expansion and continuation of the Mayor's Lead Safe St. Louis Comprehensive Action Plan		(not codified)
68302	2-16-2009	Vacation in an excess portion of McCausland beginning at Odell and extending 160.6 feet southwardly		(not codified)
68303	2-16-2009	Vacation in a 15-foot wide east/west alley in City Block 3805-E bounded by Dr. Martin Luther King Drive, Belt, Wells and Burd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68304	2-16-2009	Traffic—Repealing Section Six of Ordinance 66868, codified as Section 17.07.060 of the Revised Code, relating to advance warning signs and enacting in lieu a new section on the same subject matter which requires that warning signs be affixed traffic control signals	2	17.07.060
68305	2-24-2009	Vacation in the southern 275.5 feet if the 15-foot wide north/south alley in City Block 1241 as bounded by Bremen, N. Florissant, Farrar and 22nd		(not codified)
68306	2-24-2009	Redevelopment Plan/Area/Project—Adoption of Redevelopment Plan, Area, Project and authorizing execution of Redevelopment Agreement with McGowan Brothers Management Corporation, LLC.		(not codified)
68307	2-24-2009	Tax Increment Revenue Notes—Issuance and Delivery of Notes for the 3693 Forest Park Redevelopment Project		(not codified)
68308	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 3700 Forest Park Ave., 3711-49 and 3815-19 Market St. Redevelopment Area		(not codified)
68309	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2600 Washington Avenue Redevelopment Area		(not codified)
68310	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for 6223 Simpson Avenue		(not codified)
68311	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 1573 Fairmont Ave. Redevelopment Area		(not codified)
68312	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2 Hortus Court Redevelopment Area		(not codified)
68313	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the Glasgow Ave/N. 22nd/Angelica St. Redevelopment Area		(not codified)
68314	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 6650-68 Berthold Avenue Redevelopment Area		(not codified)
68315	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 412 N. Tucker Blvd. Redevelopment Area		(not codified)
68316	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2619 Ann Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68317	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2258 Shenandoah Ave. Redevelopment Area		(not codified)
68318	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 3100 Gravois Ave. Redevelopment Area		(not codified)
68319	2-24-2009	Redevelopment Agreement—Authorizing the execution of a second amendment to the Redevelopment Agreement with 5700 Property, LLC		(not codified)
68320	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 2325 Whittemore Place Redevelopment Area		(not codified)
68321	2-24-2009	Redevelopment Plan—Approving blighting study and redevelopment plan for the 4542 Page Blvd. Redevelopment Area		(not codified)
68322	2-24-2009	Transportation Project—Authorizing the execution of a Transportation Project Agreement between the City, KHM Holdings, LLC and the 1225 Washington Transportation Development District		(not codified)
68323	2-24-2009	Community Improvement District—Establishing the 1225 Washington Community Improvement District		(not codified)
68324	2-24-2009	Community Improvement District—Approving the petition of Chouteau Properties, Inc., to establish a Community Improvement District		(not codified)
68325	2-24-2009	Community Improvement District—Establishing the Soulard Market Apartments Community Improvement District		(not codified)
68326	2-24-2009	Redevelopment Agreement—Amending Ordinance 66422; authorizing the execution of an amendment to the Redevelopment Agreement with Washington Ave Apartments, L.P.		(not codified)
68327	4-22-2009	Massage therapists and massage facilities; requirements of massage therapist license; requirements of the massage facility business license	1—11Added	8.55.010—8.55.110
68328	4-22-2009	Parks - Memorandum of Agreement - U. S. Army Engineer District, Kansas City, sometimes referred to as the Corps of Engineers, Northwest Division, Kansas City ("CENWK"), the City, and the Metropolitan St. Louis Police Department re: possible unexploded ordinance in Forest Park		(not codified)
68329	4-22-2009	Zoning - Change of zoning from "J" Industrial District to the "H" Area Commercial District in City block 940 (2007 Delmar Blvd.)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68330	4-22-2009	Zoning - Change of zoning from "J" Industrial District to "H" Area Commercial District in City Block 3919.03 (3810 through 3848 Laclede)		(not codified)
68331	4-22-2009	Parks, Recreation & Forestry - Authorizing a cooperation agreement between the City and Operation Brightside, Inc. and providing a vested accrued benefit to employees of Operation Brightside who become members of Employees Retirement System	1—3 Added	22.05.01—22.05.030
68332	4-22-2009	Zoning - Change of zoning from "B" Two-Family Dwelling District & "G" Local Commercial and Office District and "F" Neighborhood Commercial District to the "G" Local Commercial and Office District only, in City Blocks 1820 and 2433 (4342 N. Florissant, 2125 Bissell, 2108-22 & 2126 E. Grand)		(not codified)
68333	4-22-2009	Zoning - Change of zoning from "G" Local Commercial and Office District to "C" Multiple -Family Dwelling District in City Blocs 3742 (1121-41, 1119, 1111-15 & 1109 N. Vanderventer and 3905 Finney)		(not codified)
68334	5- 5-2009	Community Improvement District - Authorizing the Board of Aldermen to approve the Petition, University Village Apartments, L.P. and Harrison Building, LP to establish the Warehouse of Fixtures Community Improvement District		(not codified)
68335	5- 5-2009	Community Improvement District - Authorizing the Board of Aldermen to approve the Second Amended Petition of 4100 Forest Park Partners, LP and the West End Lofts Condominium Association to establish the 4100 Forest Park Community Improvement District		(not codified)
68336	5- 5-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 3810-48 Laclede Avenue		(not codified)
68337	6-22-2009	Annual Operating Budget Plan for the City of St. Louis for Fiscal Year 2010		(not codified)
68338	5-18-2009	Bonds - Authorizing and directing the Comptroller to obtain a credit facility for the purpose of securing the outstanding City Justice Center Bonds; authorizing Comptroller to execute and deliver promissory note and payment of certain obligations due to the bank under the Note		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68339	5-18-2009	Providing for the borrowing of funds in anticipation of collecting tax payments levied by the City for deposit in its General Revenue Fund for calendar year ending December 31, 2009, and remaining uncollected and other revenues remaining to be collected and deposited in General Revenue Fund for FY June 30, 2010		(not codified)
68340	5-18-2009	Public Works - Establishing public works and improvement projects for the design and/or construction of 12 American Recovery and Reinvestment Act of 2009 Projects involving various infrastructure improvements (ARRA Projects)		(not codified)
68341	5-22-2009	Directing the Director of Streets to close, barricade, or impede the flow of traffic from 6 am to 6 pm, Monday through Friday during the school year of the areas of St. Ferdinand, Annie Malone Drive, Billups Avenue and Cottage Avenue		(not codified)
68342	5-22-2009	Repealing Section 54 of Ord. 49771, currently codified as Section 22.16.100 of Revised Code of St. Louis City re: prohibition of parading, exhibiting, or distributing advertisement, circular, or handbill in or adjoining any public park, place	1;lfRpld	22.216.100
68343	5-22-2009	Substantial Amendment to the 2008 Annual Action Plan to HUD for the Homelessness Prevention Fund of the American Recovery and Reinvestment Act of 2009		(not codified)
68344	5-26-2009	Streets - Authorizing the Director of Streets to temporarily close, barricade, or impede flow of traffic south of Ferry Street bounded by 11th Street, Penrose Street, and Randall Place		(not codified)
68345	6- 2-2009	Streets - Authorizing and directing Street Commissioner to designate the 4200 block of Cottage Avenue as "George D. Brantley Way"		(not codified)
68346	6- 2-2009	Streets - Authorizing and directing Street Commissioner to designate the 4200 block of Kennerly Avenue as "Tuskegee Airmen Lane"		(not codified)
68347	6- 2-2009	Zoning - Rezoning property from "A" Single-Family Dwelling District to the "F" Neighborhood Commercial District in City Block 4752.04 (5550 Fyler)		(not codified)
68348	6- 2-2009	Zoning - Rezoning property from "D" Multiple-Family Dwelling District to the "H" Area Commercial District in City Block 1463 (3500-18 Hartford)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68349	6- 2-2009	Zoning - Rezoning property of "C" Multiple-Family Dwelling District to the "F" Neighborhood Commercial District in City Block 1865 (3737 & 3739-41 Page, 1312-14 Prairie and 3746-52 Evans		(not codified)
68350	6- 2-2009	Bonds - Authorizing and directing the St. Louis Municipal Finance Corp. to issue and sell its Leasehold Revenue Bonds to fund the construction, repair, improvement, and renovation of the Cervantes Convention Center, the City Floodwall, Grand Avenue Viaduct, Tucker Viaduct, and other capital projects of the City		(not codified)
68351	6- 2-2009	BPS - Agreement between the City and Missouri Highways and Transportation Commission (MoDOT) to expedite relocation work on Water Division Facilities		(not codified)
68352	6- 8-2009	Airport - Authorizing First Amendment to Lambert Airport (the "Airport") Concession Agreement (Airport Spa) (the "First Amendment") to the Airport Spa Concession Agreement AL-431 between the City and XpresSpa St. Louis Airport, LLC (the "Concessionaire")		(not codified)
68353	6- 8-2009	Airport - Authorizing Ground Transportation Concession Agreement AL-441 between the City and Best Transportation, Inc. (the "Concessionaire")		(not codified)
68354	6- 8-2009	Airport - Grant Agreement offered by the U.S. of America through the Federal Aviation Administration of the U.S. Department of Transportation for the reimbursement of direct costs associated with the rehabilitation of Taxiway S (Runway 6 to Taxiway D - Part A)		(not codified)
68355	6- 8-2009	Airport - Grant Agreement offered by the U.S. of America through the Federal Aviation Administration of the U.S. Department of Transportation for the reimbursement of direct costs associated with the reconstruction of Taxiway Victor from Taxiway Foxtrot to Runway 24 (Phase 1) and the reconstruction of Taxiway Foxtrot from Taxiway Victor to Runway 6/24		(not codified)
68356	6- 8-2009	Airport - Transaction Agreement offered by the Federal Aviation Administration for financial assistance to the City for the purchase and installation of Airport Surface Detection Equipment (ASDE), ASDE-X monitor(s), and ASDE-X system enhancement communication at the Airport		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68357	6- 8-2009	Airport - Authorizing a Fourth Amendment to Section Six of the Airfield Projects Public Works Ord. for a multi-year public work and improvement program at Lambert Airport; amended to reimburse the costs in part or the payment of costs authorized therein		(not codified)
68358	6- 8-2009	Airport - Amending and Supplementing Ord. No. 68197 authorizing the execution and delivery of a Sixteenth Supplemental Indenture re: issuance of Series 2009A Airport Revenue Bonds and a Seventeenth Supplemental Indenture re: issuance of Series 2009B Airport Revenue Bonds, and an Amended and a Restated Indenture of Trust to be effective only upon receipt of requisite Bondholder or Bond Insurer for improvement of the Airport		(codified)
68359	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 5100 Daggett Avenue		(not codified)
68360	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 6088 Arsenal Street		(not codified)
68361	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 8750 S. Broadway and 326 Rear E. Catalan Street		(not codified)
68362	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 3312 Shenandoah Ave.		(not codified)
68363	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 6800-08 Prescott Ave.		(not codified)
68364	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 4541 Oakland Ave.		(not codified)
68365	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 1912 Nebraska Ave.		(not codified)
68366	6- 9-2009	Community Improvement District - Approving the Petition of Green Park Broadway Investors, LLC for the establishment of 840 East Taylor Community Improvement District		(not codified)
68367	6- 9-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2900 Cherokee Street		(not codified)
68368	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 3410 Nebraska Avenue		(not codified)
68369	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 3515 Victor Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68370	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 4158 Flad Avenue		(not codified)
68371	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 4518 Blair Avenue		(not codified)
68372	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 3606 & 3613 N. 19th Street		(not codified)
68373	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 2317-19 Indiana Avenue		(not codified)
68374	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 2703 S. 9th Street		(not codified)
68375	6- 9-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for Dick Gregory/ Aldine/Dr. Martin Luther King Avenue		(not codified)
68376	6- 9-2009	Redevelopment Plan - Designating Taylor Carrie as Redevelopment Area, Approving a Redevelopment Plan and Adopting TIF within the Area		(not codified)
68377	6- 9-2009	Community Improvement District - Approving the submission, ratification, execution and filing of Petition for the Creation of 14th & Market Community Improvement District and authorizing the execution and submission of the Assessment Petition		(not codified)
68378	6- 9-2009	Redevelopment Agreement - Authorizing the execution of Redevelopment Agreements between St. Louis City and Taylor Carrie TIF, Inc.		(not codified)
68379	6-10-2009	Retirement System - Repealing Subsection 5 of Section 13 of Ord. No. 66511 regarding the investments of the Employees Retirement System and enacting a new provision on the same subject matter	1	4.16.100 E.
68380	6-16-2009	Redevelopment Plan - Approving Authority to Amend Ord. No. 55390 re: the Entertainment License Tax creating a new subclass of Taxpayers and Fixing a Tax Rate for such subclass of Taxpayers	2	8.08.010
68381	6-16-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for 1400 Market Street		(not codified)
68382	6-16-2009	Lease - Authorizing a Master Lease between LCRA and the Kiel Center Redevelopment Corp. approving certain documents whereby the City leased the Opera House Property to the Authority in which the City is not in default under Lease Financing Agreement		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68383	6-16-2009	Lease - Authorizing and approving the First Amendment to Amended and Restated Master Lease between the City of St. Louis and St. Louis Municipal Finance Corporation to which the Kiel Opera House is released and removed from the terms and provisions of the Amended and Restated Master Lease		(not codified)
68384	6-16-2009	Lease - Authorizing and approving all agreements which include the Master Lease between the City and LCRA; an Agreement for Payment in Lieu of Taxes between the City and Opera House; a Non-Disturbance and Attornment Agreement among the City, the Authority and Opera House and actions relating to the redevelopment and financing of the Kiel Opera House		(not codified)
68385	6-16-2009	Authorizing and Approving the Agreement for Payment or Defeasance of Bonds relating to the redevelopment and financing of Kiel Opera house		(not codified)
68386	6-22-2009	Real Property - Authorizing and directing the Mayor and Comptroller to execute a Quit Claim Deed to remise, release and forever quit-claim unto AmerenUE certain City-owned property located in City Block 3879-S		(not codified)
68387	6-22-2009	Directing the Streets Director to temporarily close, barricade or impede the flow of traffic on Clemens Avenue at the east curb line of Hamilton Avenue		(not codified)
68388	6-22-2009	Parking Division - Making appropriation for payment of operating expenses, capital equipment and improvement expenses, including lease purchase agreements involving Parking Division assets, and debt service expenses of the Parking Division of the Treasurer's Office		(not codified)
68389	6-22-2009	Real Property - Authorizing and directing the Mayor and Comptroller to execute a Quit Claim Deed to remise, release and forever quit-claim unto Cornerstone/St. Luke's Inc. certain City-owned property located in City Blocks 4547 and 4548 known as 5632-38 and 5637-49 Enright Avenue		(not codified)
68390	6-30-2009	Easement Agreement with Missouri Highways and Transportation Commission authorizing a permanent aerial easement for the construction and maintenance of Interstate Highway 70 for a sum of $79,000		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68391	6-30-2009	Cooperation Agreement with the YMCA of Greater St. Louis for the operation of a City recreation facility in Carondelet Park		(not codified)
68392	6-30-2009	Special Events - Prohibiting any individual from sampling and/or erecting a portable structure within an Special Event Zone as designated by a special event permit without prior approval of the Special Events Program Executive		(3.45)
68393	6-30-2009	Vacation - at the 20-foot wide east-west alley and the easternmost 355.66 feet of the 15-foot wide east-west alley of City Block 1858 bounded by Cass, Webster, Evans and Francis		(not codified)
68394	6-30-2009	Streets - Authorizing and directing the Street Commissioner to designate Burd Avenue as "Pastor Michael Jones Avenue"		(not codified)
68395	7- 7-2009	Tax Increment Revenue Notes - Issuance and Delivery of Notes for Taylor Carrie Redevelopment Project		(not codified)
68396	7- 7-2009	City Public Transit Sales Tax Trust Fund - Memorandum of Agreement (MOA) with the Bi-State Development Agency & St. Louis County providing for the City's annual appropriation of the quarter-cent sales tax levied for public mass transportation purposes		(not codified)
68397	7- 7-2009	Transportation Trust Fund - Sum is appropriated to the Bi-State Development Agency to be used exclusively and without diversion in any way for public transit purposes pursuant to Section 94.600 R.S. Mo. Supp. 1986 as amended		(not codified)
68398	7- 7-2009	Authorizing a Third Amendment to Memorandum of Agreement with Bi-State Development Agency and St. Louis County authorizing said Agency to issue refunding obligations payable from annual appropriation of the quarter-cent sales tax levied by the City for public mass transportation purposes by Ord #63168 and other available revenues of said Agency		(not codified)
68399	7- 7-2009	Excise - Repealing Ord 67701 and enacting new ordinance prohibiting issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the First Ward Liquor Control District for three years except for the transfer of existing licenses and the issuance of a drink license to persons operating a restaurant at a previously non-licensed premises		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68400	7- 7-2009	Preservation Review Districts - Amending Ord 66609 to add Exhibit A which defines the boundaries of District 21		(codified)
68401	7- 7-2009	Airport - Authorizing Director of Airports and Comptroller to enter into and execute the First Amendment to Lease Agreement between the City and Airport Terminal Services, Inc.		(not codified)
68402	7- 7-2009	Airport - Authorizing Director of Airports and Comptroller to enter into and execute a Restated and Amended Concession Agreement (Display Advertising) between the city and clear Channel Outdoor, Inc. d/b/a Clear Channel Airports		(not codified)
68403	7- 7-2009	Excise - Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the 19th Ward Liquor Control District for three years except for the transfer of existing licenses and the issuance of a drink license to persons operating a restaurant at a previously non-licensed premises		(not codified)
68404	7- 7-2009	Ordinance regarding the definitions of Drug Paraphernalia, amending Ord 66419, approved August 2, 2004, codified as Chapter 11.61 of Revised Code, repealing Section 11.61.010 and enacting a new section re: same subject matter	1	11.61.010
68405	7- 7-2009	City Courts - Providing that the Municipal Division Judge or Associate Circuit Judge assess an additional court cost up to $150 per violation of Chapters 11.60 and 11.61 of the Revised Code of St. Louis City in which a crime lab makes analysis of a controlled substance; these costs should be collected by the Clerk of City Courts and pay funds into City treasury monthly	1 Added	11.61.040
68406	7-15-2009	Airport - Authorizing Director of Airports to establish, enter and execute a program for the short rental of kiosk space at Lambert Airport by adopting the Policy and Criteria for the Letting of Kiosks at Lambert Airport		(not codified)
68407	7-15-2009	Gateway Mall Advisory Board - Authorizing the establishment of Gateway Mall Advisory Board and providing for its membership, authority and responsibilities	1—5 Added	3.105.010—3.105.050
68408	7-15-2009	Substantial Amendment to the 2008 Consolidated Plan to HUD authorizing and directing the Mayor and Comptroller on behalf of the City to enter into and execute agreements with HUD for receipt of 2008 CDBG-R funds, appropriating the sum of $5,333,348.00		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68409	7-15-2009	Ord. adopted pursuant to Section 105.483(11) RSMo., reaffirming the provisions of Ords. 62391, 66691 and 67617 establishing a policy for disclosure of potential conflicts of interest and substantial interests for certain municipal officials	1—5	4.07.010—4.07.050
68410	7-15-2009	Memorandum of Agreement between the City and The Bi-State Development Agency d/b/a "Metro" which provides for the City to use Metro's extensive Information Technology System for equipment and expertise that the City does not presently possess		(not codified)
68411	7-15-2009	Public Safety - Authorizing and directing the Mayor and Director of Public Safety to enter into and execute a Grant Agreement in the sum of $4,188,249.00 with U.S. Department of Justice, Bureau of Justice Assistance, to fund the Recovery Act Justice Assistance Program		(not codified)
68412	7-27-2009	Public Works - Establishing apprenticeship training, workforce diversity, and city resident programs for City-funded public works contracts; establishing a Community Jobs Board	1—9 Added	3.110.010—3.110.090
68413	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4163 Green Lea Place Redevelopment Area		(not codified)
68414	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4933 Odell Street Redevelopment Area		(not codified)
68415	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4034 Magnolia Place Redevelopment Area		(not codified)
68416	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3818 Utah Redevelopment Area		(not codified)
68417	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3872 Delor Street Redevelopment Area		(not codified)
68418	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4400-04 S. Grand Blvd. Redevelopment Area		(not codified)
68419	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4541 Michigan Ave. Redevelopment Area		(not codified)
68420	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 514-16 Fassen Street Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68421	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4709-11 Newport Ave. Redevelopment Area		(not codified)
68422	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3924 Cleveland Ave. Redevelopment Area		(not codified)
68423	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3818 Botanical Ave. Redevelopment Area		(not codified)
68424	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2024-26 Lafayette Ave. Redevelopment Area		(not codified)
68425	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2907-09 Michigan Ave. Redevelopment Area		(not codified)
68426	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6201-59 N. Broadway, 800-840 E. Taylor Ave. Redevelopment Area		(not codified)
68427	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Carrie Ave./Bulwer Ave./Adelaide Ave./N. 3rd Street Redevelopment Area		(not codified)
68428	7-27-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Chouteau/Jefferson/Papin Redevelopment Area		(not codified)
68429	7-27-2009	Tax Increment Financing Redevelopment Agreement - Authorizing and directing the execution of the Third Amendment to the Redevelopment Agreement between the City and the Grand Center		(not codified)
68430	7-27-2009	Redevelopment Plan/Area/Agreement - Amending Ordinance 68101 Redevelopment Area and Authorizing the Execution of an Amendment to Redevelopment Agreement between the City and Laurel TIF Inc; permitting City to enter into an Agreement with Laurel TIF Apartments and Laurel TIF Hotel		(not codified)
68431	7-27-2009	Tax Increment Revenue Notes - Repealing Ord. 68102 and in lieu thereof Authorizing and Directing the Issuance and Delivery of Not to Exceed $32,000,000 Plus Issuance Costs Principal Amount of Tax Increment Revenue Notes (The Laurel/555 Washington Redevelopment Project) Series 200_-A/B		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68432	7-27-2009	Cooperation Agreement - Authorizing the Execution of a Cooperation Agreement between the City and the Wellpoint Companies, Inc. to redevelop a commercial building at 1831 Chestnut		(not codified)
68433	7-27-2009	Lease Option/Agreement - Authorizing and directing the Mayor and Comptroller to enter into and execute a lease option and lease of City-owned property located at 8400 Alabama and 8402 Alabama for a period of lesser of 99 years or upon expiration of Pinnacle's, or its assigns, lease with St. Louis County Port Authority		(not codified)
68434	7-27-2009	Community Improvement District - Approving the petition of Washington Ave. Apartments, LP to establish 1133 Washington Ave. Community Improvement District		(not codified)
68435	7-27-2009	Transportation Project Agreement - Authorizing the Execution of a Transportation Project Agreement between the City, Washington Ave. Apartments, LP and the Washington Avenue Transportation Development District		(not codified)
68436	7-27-2009	Community Improvement District - Approving the petition of 1110 Partners, LP and 1122 Washington, LP to establish 1100 Washington Ave. Community Improvement District		(not codified)
68437	7-27-2009	Community Improvement District - Approving the petition of City Hospital Development III, LLC and ELG Palladium Group, LLC to establish City Hospital RPA 2 - Phase I Community Improvement District		(not codified)
68438	7-27-2009	Redevelopment Plan/Area/Agreement - Approving an Amendment to the Foundry TIF Redevelopment Plan; Amending the designation of a redevelopment project; Affirming the adoption tax increment financing within the redevelopment area and authorizing the execution of an amendment to the Redevelopment Agreement		(not codified)
68439	7-27-2009	Community Improvement District - Approving the petition of Chouteau Properties IV, LLC and Merus Properties, LLC to establish Chouteau Crossing Community Improvement District		(not codified)
68440	7-27-2009	Redevelopment Plan/Area/Project - Approving Redevelopment Area known as the Hadley Dean Building pursuant to the Real Property Tax Increment Allocation Redevelopment Act; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Hadley Dean Building Special Allocation Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68441	7-27-2009	Redevelopment Agreement - Authorizing the execution of a redevelopment agreement between the City and Hadley Dean Building TIF, Inc.		(not codified)
68442	7-27-2009	Tax Increment Revenue Notes - Authorizing and Directing the Issuance and Delivery of not to exceed $950,000 plus issuance costs principal amount of tax increment revenue notes (Hadley Dean Building Redevelopment Project Series 20_-A/B		(not codified)
68443	9-23-2009	Streets - Establishing two church swivel stop sites for all northbound and southbound traffic traveling on Union Blvd. at the approximately 220 feet south of Lillian Ave. and at the southbound Union Blvd. at approximately 180 feet north of Lillian Ave. between 7 am and 2 pm on Sundays and other such times ordered by the Police Dept		(not codified)
68444	9-23-2009	Streets - Temporarily close, barricade Dodier Street at east cur of Prairie Ave.		(not codified)
68445	10- 5-2009	Vacation - at the southern 275.5 feet of the 15-foot wide north/south alley in City Block 1241 bounded by Bremen, N. Florissant, Farrar and 22nd		(not codified)
68446	10- 5-2009	Vacation - at the 15-foot wide north/south alley and the easternmost 80 feet + 4 feet of the 20-foot wide east/west alley in City Block 3742 bounded by Cook, Vandeventer, Finney and Sarah		(not codified)
68447	10- 5-2009	Community Improvement District - Approving the petition of W2007 MVP St. Louis, LLC to establish Riverfront Hotel Community Improvement District Improvement District		(not codified)
68448	10- 5-2009	Vacation - at Mallinckrodt St. (60 feet wide) from 25th St. to Natural Bridge Ave., adjacent to City Block 1744		(not codified)
68449	10- 5-2009	Vacation - at Bissell from N. Florissant eastwardly ~ 276 feet + 10 feet to the west right-of-way line of the alley in City Block 2433 as bounded by Bissell, Strodtman, Ferry and N. Florissant		(not codified)
68450	10- 5-2009	Streets - Honorarily designating Dodier Street as "Sportsman's Park Way."		(not codified)
68451	10- 5-2009	Traffic - Establishing a four way stop site at the intersection of North 9th Street and North Market Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68452	10- 5-2009	Public Works - Establishing public works and improvement project for the removal of the North Tucker Viaduct and reconstruction of North Tucker Blvd. (the "North Tucker Viaduct Project - Phase II)		(not codified)
68453	10-13-2009	Vacation - at Children's Place (fka Audubon Ave.) beginning at Euclid and extending westwardly ~ 550 feet and Euclid Ave. from the north right-of-way line of Children's Place southwardly ~ 786 feet to the north right-of-way line of Barnes-Jewish Hospital Plaza (except areas utilized by Metro, see Ord. 62241)		(not codified)
68454	10-13-2009	Streets - Permanently close the westernmost ally in City Block 3678 bounded by Annie Malone Drive, Garfield Ave., Whittier Street and North Market Street at a point 38 feet south of North Market St.		(not codified)
68455	10-13-2009	Streets - Repealing Ord. 64557 to authorize Street Director to permanently close San Francisco Ave. 387 feet east of the eastern curbline Kingshighway Blvd.		(not codified)
68456	10-13-2009	Streets - Honorarily designate the 4500 block of Arlington Ave. as "Rev. Adrian F. Jones Boulevard."		(not codified)
68457	10-13-2009	Vacation - at an irregular portion of Gratiot beginning at 7th and extending westwardly approximately 370 feet to a portion of Gratiot previously vacated by Ord. 59703		(not codified)
68458	10-21-2009	Authorizing and directing the Mayor to submit all necessary applications and to enter into agreements with Missouri Foundation for Health or any other agency (Grant #09-0005-CAL-09) for the "Asthma Friendly St. Louis" Program		(not codified)
68459	10-21-2009	Agreements - Authorizing and directing the Mayor and Comptroller to execute an Intergovernmental Cooperation Agreement and Perpetual Roadway Easement Agreement by and among St. Louis City, St. Louis County and Pinnacle Entertainment, Inc. for maintenance to the County for a portion of Weber Road and Carondelet Blvd, including renaming such as "River City Casino Blvd."		(not codified)
68460	10-21-2009	Parks - Renaming Ellendale/Arsenal Park as "Francis R. Slay Park"		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68461	10-28-2009	Appropriation of funds in the amount of $1,058,357.18 from fund 1116-center 1600013 for the construction and alterations of 1520 Market Street with said funds being addition to the funds available pursuant to Ordinance 67949		(not codified)
68462	10-28-2009	Easement - Authorizing and directing the Mayor and Comptroller to execute upon receipt of consideration a permanent, irrevocable Easement to Metropolitan St. Louis Sewer District the right to build and maintain a sewer or sewers, including storm water improvements on the strip or strips of ground described and in Out Lot 115		(not codified)
68463	11- 5-2009	Keeping of certain animals; amending Ord. 62853, Section 7, of said Ordinance codified in Section 10.20.015 of the Revised Code of City of St. Louis, and enacting in lieu thereof a new section on the same subject matter	1	10.20.015
68464	11- 5-2009	Zoning - Change zoning from "A" Single-Family Dwelling District & "J" Industrial District to "J" Industrial District only in City Block 4809 (6854 Balson)		(not codified)
68465	11- 6-2009	Airport - Ratifying and adopting the actions of the Mayor and Comptroller in accepting and executing a Grant Agreement offered by the U.S. of America, acting through the Federal Aviation Administration of U.S. Dept. of Transportation for a maximum federal obligation of $3,724,835 for reimbursement of direct costs associate with reconstruction of Taxiway Victor from Taxiway Foxtrot to Runway 24		(not codified)
68466	11- 6-2009	Airport - Ratifying and adopting the actions of the Mayor and Comptroller in accepting and executing a Grant Agreement offered by the U.S. of America, acting through the Federal Aviation Administration of U.S. Dept. of Transportation for a maximum federal obligation of $539,020 for reimbursement of direct costs associate with reconstruction of Taxiway Lima from Taxiway Foxtrot to Taxiway F7		(not codified)
68467	11- 6-2009	Airport - Authorizing a First Supplemental Appropriation in total amount of $1,888,992 from the Airport Construction Fund Sub-Account for the 2009 Series A-2 Bond Issue re: the Airfield Projects		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68468	11- 6-2009	Airport - Authorizing a Third Supplemental Appropriation in the total amount of $3,418,171 from the Airport Construction Fund Sub-Account for the 2009 Series A-1 Bond Issue re: the Building Projects		(not codified)
68469	11- 6-2009	Airport - Authorizing a Second Amendment to Section One of the Taxiway D Project which authorizes a multi-year public work and improvement program at Lambert Airport in the total amount of $8,320,000		(not codified)
68470	11- 6-2009	Airport - Authorizing a Fourth Supplemental Appropriation in the total amount of $86,586,183 from the Airport Construction Fund Sub-Account for the 2009 Series A-1 Bond Issue re: the Airport Schedule F CIP Project		(not codified)
68471	11- 6-2009	Airport - Authorizing a First Supplemental Appropriation in the total amount of $784,014 from the Airport Construction Fund Sub-Account for the 2009 Series A-1 Bond Issue re: the Building & Environ Project		(not codified)
68472	11- 6-2009	Airport - Grant Agreement between the City and the Missouri Highways and Transportation Commission in the maximum obligation of $180,000 for Apron Design for the construction of an aircraft ramp at the Airport		(not codified)
68473	11- 6-2009	Airport - Authorizing and Executing a Memorandum of Agreement or Master Site Lease Agreement between the City and the Federal Aviation Administration (FAA) granting the FAA establishment, operation, and maintenance of navigational aid facilities at Lambert Airport		(not codified)
68474	11- 6-2009	Airport - Ratifying and adopting the actions of the Mayor and the Comptroller in accepting and executing a Grant Agreement offered by U.S. of America, acting through the Federal Aviation Administration of the U.S. Depart. of Transportation for a maximum federal obligation for $1,125,000 for reimbursement of direct costs re: the Environmental Management System		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68475	11- 6-2009	Airport - Ratifying and adopting the actions of the Mayor and the Comptroller in accepting and executing a Grant Agreement offered by U.S. of America, acting through the Federal Aviation Administration of the U.S. Depart. of Transportation for a maximum federal obligation for $4,905,820 for reimbursement of direct costs re: the rehabilitation of Taxiway S (Runway 6 to Taxiway D) (Phase 2, Part B)		(not codified)
68476	11- 6-2009	Airport - Authorizing and directing the Director of Airports and the Comptroller to enter into and execute on behalf of the City a 10th Amendment to the Indenture of Lease between the City and Lambert Field Fueling Facilities Corporation at Lambert Airport		(not codified)
68477	11- 6-2009	Airport - Authorizing and directing the Director of Airports and the Comptroller to enter into and execute a Concession Agreement between the City and U.S. Bank (the "Concessionaire") to operate, manage, and maintain a Banking Concession within the premises		(not codified)
68478	11- 6-2009	Airport - Providing for financial incentives for new airlines and new air service at Lambert Airport thereby adopting an Air Service Incentive Program in the total amount of $1,673,000		(not codified)
68479	11- 6-2009	Health Department - Authorizing and directing the Mayor by and through the Acting Director of Health to submit all necessary applications and to enter into all necessary agreements and contracts with the Department of Health & Senior Services Center for Emergency Response and Terrorism for the Public Health Emergency Response Phase I, II and III contracts.		(not codified)
68480	11- 6-2009	Authorizing the Mayor to submit a 2010 Consolidated Plan and Annual Plan to HUD to apply for funding under the Federal Community Development Block Grant (CDBG), HOME Investment Partnership (HOME), Emergency Shelter Grant (ESG) and Housing Opportunities for Persons with AIDS (HOPWA) Entitlement Programs		(not codified)
68481	11- 9-2009	Smoking - Prohibiting smoking in public places and in the workplace; enacting regulations, enforcement provisions and penalty clause	1—13Added	11.31.010—11.31.130
			16 Added	11.31.140
68482	11- 9-2009	Streets - Directing the Director of Streets to temporarily close, barricade, or impede the flow of traffic on Maffitt Ave. at the east curb line of Sarah Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68483	11- 9-2009	Streets - Directing the Director of Streets to temporarily close, barricade, or impede the flow of traffic on Cabanne Ave. at the east line of library parking lot east of Union Blvd.		(not codified)
68484	11-10-2009	Redevelopment Plan/Area/Project - Approving Redevelopment Area known as the Northside Regeneration Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Project Areas A and B; establishing the Northside Regeneration Special Allocation Fund		(not codified)
68485	11-10-2009	Redevelopment Agreement - Affirming the redevelopment plan, area and project and authorizing the execution of a Redevelopment Agreement between the City and Northside Regeneration, LLC		(not codified)
68486	11-10-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for the Olive St./N. 11th Redevelopment Area		(not codified)
68487	11-10-2009	Redevelopment Plan - Approving Blighting Study and Redevelopment Plan for the 6500-18 Chippewa St. Redevelopment Area		(not codified)
68488	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2710 Cherokee Street Redevelopment Area		(not codified)
68489	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5325 Bischoff Ave. Redevelopment Area		(not codified)
68490	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 7421-29 S. Broadway St. Redevelopment Area		(not codified)
68491	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3152 Osceola Street Redevelopment Area		(not codified)
68492	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the N. Taylor Ave./Dr. Martin Luther King Dr./St. Louis Ave. Redevelopment Area		(not codified)
68493	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 1939-45 S. Vandeventer Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68494	11-10-2009	Redevelopment Agreement - Authorizing the Execution of an Amendment to Redevelopment Agreement between the City and Gilded Age Renovation, LLC.; Adopting Tax Increment Financing within the Redevelopment Area; establishing The Mississippi Place Special Allocation Fund		(not codified)
68495	11-10-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2003 Maury Ave. Redevelopment Area		(not codified)
68496	11-19-09 (eff.)	Airport - On-Airport Passenger Vehicle Rental ("PVR") Concession Agreements between the City and The Hertz Corporation; Avis Rent A Car System, LLC; Vanguard Car Rental USA, LLC, d/b/a National; Enterprise Leasing Company of STL, LLC, d/b/a Enterprise Rent-A-Car; Budget Rent A Car System, Inc.; Vanguard Car Rental USA, LLC, d/b/a Alamo, and & J Rental, Inc., d/b/a Thrifty Car Rental		(not codified)
68497	11-19-2009	Streets - Directing the Director of Streets to temporarily close, barricade, or impede the flow of traffic at Newberry Terrace at the east curb line of Marcus Ave.		(not codified)
68498	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6323 Arthur Ave. Redevelopment Area		(not codified)
68499	11-19-2009	Vacation - at Taylor Ave. from Duncan/Parkview to relocated Taylor Ave., being adjacent to City Blocks 3970 and 4781N in City of St. Louis		(not codified)
68500	11-19-2009	Vacation - at South Trudeau from Second St. to the east right-of-way line of DeKalb and DeKalb from the north right-of-way line of South Trudeau south ~ 176 feet to the center line of the alleys in City Blocks 733 and 735 in City o St. Louis		(not codified)
68501	11-19-2009	Redevelopment Plan - Modifying the terms of the five year real estate tax abatement for 4525 Wichita Ave. and 4531 Arco Ave., of a prior Ordinance 68255 approving a Redevelopment Plan for same after finding that Area was blighted		(not codified)
68502	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4164 Chippewa Street Redevelopment Area		(not codified)
68503	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2921 Missouri Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68504	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6323 and 6327 Minnesota Ave. Redevelopment Area		(not codified)
68506	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3241 Missouri Ave. Redevelopment Area		(not codified)
68507	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2917 S. 18th Street Redevelopment Area		(not codified)
68508	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4162-68 Manchester Ave. Redevelopment Area		(not codified)
68509	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4472 Lindell Blvd. Redevelopment Area		(not codified)
68510	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5406 Idaho Ave. Redevelopment Area		(not codified)
68511	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1216 Kraft Street Redevelopment Area		(not codified)
68512	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3540-42 Sidney Street Redevelopment Area		(not codified)
68513	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3951 Flad Ave. Redevelopment Area		(not codified)
68514	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4530 Holly Ave. Redevelopment Area		(not codified)
68515	11-19-2009	Vacation - at the remaining 50.5 feet of the 15-foot wide north/south alley in City Block 74 as bounded by Lombard, I-55, Chouteau and Fourth Street in City of St. Louis		(not codified)
68516	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4175 Chippewa Ave. Redevelopment Area		(not codified)
68517	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6300-22, 6303-21 and 6321-25 Rear Clayton Ave. Redevelopment Area		(not codified)
68518	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4300 Manchester Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68519	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3933-35 Shenandoah Ave. Redevelopment Area		(not codified)
68520	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for Sheridan Ave./ Garrison Ave./Thomas Street Redevelopment Area		(not codified)
68521	11-19-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2201 Sidney Street Redevelopment Area		(not codified)
68522	11-19-2009	Authorizing and directing the Mayor and Comptroller to enter and execute a Lease Agreement between City of St. Louis and the Treasurer of City-owned property located at the basement level of 1520 Market Street for a maximum of 99 years		(not codified)
68523	11-19-2009	Streets - Authorizing and directing the Street Commissioner to honorarily designate the 4500 block of Labadie Ave. as "Margaret Bush Wilson Lane"		(not codified)
68524	12- 4-2009	Tax Increment Financing - Approving that the Tax Increment Financing Plans, as specified, are making satisfactory progress under the proposed time schedule		(not codified)
68525	12- 4-2009	Streets - Authorizing and directing the Street Commissioner to honorarily designate the 2700 block of Sheridan Ave. as "Percy Edward James, Jr., Ct."		(not codified)
68526	12-14-2009	Grant - Authorizing and directing the Director of Public Safety to enter and execute a Grant Agreement with the U.S. Dept. of Justice, Bureau of Justice Assistance, to fund the Justice Assistance Grant Program, upon approval of the Board of E & A, and to expend funds by entering into contracts for grant purposes		(not codified)
68527	12- 4-2009	Excise - Pertaining to the Liquor Control Law of the City of St. Louis; amending Section One of Ord #66271 setting forth an area which shall no longer be within the convention trade area of the City of St. Louis	1	14.03.230
68528	12- 4-2009	Bonds - Authorizing and directing the St. Louis Municipal Finance Corporation to issue and sell its Leasehold Revenue Refunding Bonds in order to refund all or a portion of its outstanding Refunded Bonds and to issue and sell its Leasehold Revenue Improvement Bonds in order to fund the construction, repair, improvement, and renovation of Cervantes Convention Center		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68529	12- 4-2009	Streets - Directing the Director of Streets to temporarily close, barricade, or impede the flow of traffic at Aubert Ave. at the north curb line of Suburban Track and at Aubert Ave. at the south curb line of Suburban Track		(not codified)
68530	12-14-2009	Refuse - Pertaining to Refuse Collection from non-residential premises; Amending Ord. 61654 and enacting in lieu thereof a new section pertaining to refuse collection from non-residential premises near residentially zoned premises and premises used as a dwelling	1	11.02.255 F.
68531	12-14-2009	Streets - Repainting of all existing painted lines and/or markings following the completion of all public street construction or resurfacing		(not codified)
68532	12-14-2009	Redevelopment Agreement - Amending Ordinance 65857 and 66431 and 67059 and 68429 Approving a Fourth Amendment to the Redevelopment Agreement		(not codified)
68533	12-14-2009	Redevelopment Agreement - Amending Ordinance 65857 and 66431 and 67059 and 68429 and 68532 (BB#233) approving a Fifth Amendment to the Redevelopment Agreement		(not codified)
68534	12-15-2009	Authorizing and directing the Mayor and Comptroller to execute, upon receipt of and in consideration of the sum of One Dollar ($1.00) and other good and valuable consideration, a Quit Claim Deed to remise, release and forever quit-claim unto Washington Metropolitan A.M.E. Zion Church, Inc. certain City-owned property located in City Block 1024, known as 3040 Delmar Ave.		(not codified)
68535	12-15-2009	Public Nuisances - Repealing Ord. 67600 and enacting in lieu thereof a new ordinance establishing procedures for the abatement of public nuisances	1—5	15.42.010—15.42.050
			6 Rnbd	15.42.060
			as	15.42.070
			Added	15.42.060
			7	15.42.070

Ordinance Number	Date	Description	Section	Section this Code
68536	12-15-2009	Excise - Repealing Ord. 66271, 66227, 64643, 63129, 62656, 62940, 62422 and 61289 presently codified as Title 14 of the Revised Code of the City having as subject matter the Excise Code, definitions, establishment of Excise Division, general regulations, general violations, etc. and enacting in lieu thereof a new ordinance on the same subject matter	1 Rpld	14.01.010—14.01.450,
				14.02.010—14.02.090,
				14.03.010—14.03.230,
				14.04.010—14.04.100,
				14.05.010—14.05.150,
				14.06.010—14.06.340,
				14.07.010—14.07.060,
				14.08.010—14.08.230
			2 Added	14.01.010—14.01.450
			3 Added	14.02.010—14.02.090
			4 Added	14.03.010—14.03.210
			5 Added	14.04.010—14.04.100
			6 Added	14.05.010—14.05.170
			7 Added	14.06.010—14.06.340
			8 Added	14.07.010—14.07.060
			9 Added	14.08.010—14.08.235
68537	12-15-2009	Redevelopment/Financing Agreement - Authorizing the Termination of the Redevelopment Agreement between the City and the Original Developer (One City Centre Investor, Inc.); Authorizing the Execution of a Financing Agreement by and among the City, the Land Clearance for Redevelopment Authority of the City and the New Developer (600 Tower, LLC)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68538	12-15-2009	Community Improvement District - Approving the petition of Hadley Square Master Landlord, LLC and Hadley Square Condominium Association, Inc. to establish the Hadley Dean Building Community Improvement District		(not codified)
68539	12-15-2009	Redevelopment Agreement - Authorizing and directing the Mayor and Comptroller to enter into and execute an Addendum to the Redevelopment Agreement with Convention Center Hotels Acquisition Company, LLC; Approving a petition for the establishment of the St. Louis Convention Center Hotel Community Improvement District		(not codified)
68540	12-15-2009	Classified Service Employees - Repealing Ordinance 68126 pertaining to compensation plans, terms and conditions of employment, benefits, and authorization for deferred compensation and enacting in lieu a new ordinance pertaining to the same subject	1—27	4.10.010—4.10.270
68541	12-15-2009	Collector of Revenue Employees - Repealing Ordinance 68125, pertaining to the appointment of and salaries of certain employees in the Collector of Revenue's Office and enacting in lieu of a new ordinance on the same subject	1 Rpld	4.44.010—4.44.070
			2—7 Added	4.44.010—4.44.060
68542	12-15-2009	Circuit Attorney - Amending Ord. 68119 and 68175 pertaining to the Office of the Circuit Attorney allocating the positions established by Section 56.540, R.S.Mo. to classes with grades and schedule setting minimum and maximum salaries for such grades	1 Rpld	4.48.010—4.48.070
			2, Added	4.48.010, 4.48.020,
			3—5,	4.48.030—4.48.050
			6(A), (B)	4.48.060, 4.48.070
68543	12-22-2009	Vacation - at Rutger Street from Virginia Ave. to Ranken (vacated) in the City of St. Louis		(not codified)
68544	12-22-2009	Vacation - at Kemper, adjacent to City Blocks 4733WB and 4735, beginning 240 feet west of Hereford and continuing westwardly 130.315 feet to a point previously vacated by Ord. 63602		(not codified)
68545	12-22-2009	Streets - Authorizing and directing the Street Commissioner to honorarily designate the 4300 block of DeTonty Street as "Floyd K. Wright Way."		(not codified)
68546	12-22-2009	Streets - Authorizing and directing the Street Commissioner to honorarily designate the 1400 block of Elliott Ave. as "Percy Edward James, Jr., Ct."		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68547	12-22-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for St. Louis/ Euclid Ave./N. Kingshighway Blvd. Redevelopment Area		(not codified)
68548	12-22-2009	Redevelopment Plan/Area/Project - Terminating the designation St. Louis Riverfront Moorings Sites as a Redevelopment Area, authorizing disbursement of any special allocation funds		(not codified)
68549	12-22-2009	Redevelopment Plan/Area/Agreement - Terminating the designation of the Switzer Building Redevelopment Area as a "redevelopment area"; authorizing the disbursement of any special allocations funds		(not codified)
68550	12-22-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 800 Olive Street Redevelopment Area		(not codified)
68551	12-22-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the N. Vandeventer Ave./Cook Ave./Jones St./Page Blvd. Redevelopment Area		(not codified)
68552	12-22-2009	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 1201-35 N. Grand Blvd. and 3600-26 Page Blvd. Redevelopment Area		(not codified)
68553	12-22-2009	Redevelopment Agreement - Amendment to the South Carondelet District #2 Tax Increment Financing (TIF) Redevelopment Plan due to a change in use to commercial, education and social services		(not codified)
68554	12-22-2009	Redevelopment Agreement - Authorizing and Executing a Redevelopment Agreement between the City and Carondelet TIF, Inc. for the Redevelopment Area known as South Carondelet District #2, and authorizing the execution of a new redevelopment agreement between the same parties for the same redevelopment area due to a change in use		(not codified)
68555	12-22-2009	Tax Increment Revenue Notes - Authorizing and directing to issue Tax Increment Revenue Notes not to exceed $498,649 plus Issuance Costs for South Carondelet District #2 Redevelopment Project, Series 200_-A/B		(not codified)
68556	12-22-2009	Streets - Authorizing and directing the Street Commissioner to honorarily designate the 2800 block of Abner Place as "Rev. Dr. Curtis Shelton Place."		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68557	1-29-2010	License Collector - An ordinance pertaining to the failure to take out a license in the City of St. Louis	1	8.02.170
68558	1-29-2010	Airport - Authorizing and directing the Direct of Airports and the Comptroller to enter into and execute a Development Agreement AL-479 between the Lambert Airport and Aero, St. Louis, LLC granting Aero the exclusive right to develop certain real property located in St. Louis County (Northern Tract)		(not codified)
68559	1-29-2010	Airport - Authorizing and directing the Mayor and the Comptroller to execute a Grant Agreement offered by the Missouri Highways and Transportation Commission for the development of air service improvements at the Airport for $823,500 for reimbursement of direct costs associated with projects funded under the Grant Agreement		(not codified)
68560	1-29-2010	Airport - Authorizing and directing the Director of Airports and the Comptroller to execute the First Amendment to Lambert Airport Concession Agreement for Public Communications Services between the City and Power Station, LLC		(not codified)
68561	1-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4247 Laclede Ave. Redevelopment Area		(not codified)
68562	1-29-2010	Vacation - at access way from St. Louis Ave. to Montgomery Ave.; access way from Montgomery Ave. to Warren St.; the westernmost 42 feet of the 15-foot wide east/west alley in City Block 1123 bounded by St. Louis Ave., 13th, Montgomery and 14th St.; the westernmost 21.50 feet of the 15-foot wide east/west alley in City Block 1124 bounded by Montgomery, 13th, Warren and 14th in the City of St. Louis		(not codified)
68563	1-29-2010	Vacation - at the 8-foot wide walkway extending from Gast Place to the 20-foot wide north/south alley in City Block 5636 bounded by Hornsby, Concord Place, Grape (vacated) and Gast Place in the City of St. Louis		(not codified)
68564	2- 2-2010	Amending Section 3 of Ord. 68284 regarding the composition of the City Health Insurance Committee	1	4.10.225 B.

Ordinance Number	Date	Description	Section	Section this Code
68565	2-10-2010	Airport - Restated Indenture of Trust between the City, as Grantor, and UMB Bank, N.A., as Trustee; Authorizing a transfer in the total amount of $17,000,000 from the Airport Development Fund into the Airport Contingency Fund		(not codified)
68566	2-10-2010	Airport - Authorizing a First Amendment to Section 4, subsection "Fund 1511 The City of St. Louis Airport Enterprise Fund" of the City of St. Louis' Annual Operating Budget Ord. 68337 for the fiscal year July 1, 2009 and ending June 30, 2010; Appropriated sum of $162,305,185 for operating expenses at Lambert Airport		(not codified)
68567	2-10-2010	Easement - Authorizing and directing the Mayor and Comptroller to execute two Temporary Easements for Highway Purposes for the sum of $15,600 in real estate on the strips of ground described and in City Block 1692-S		(not codified)
68568	2-23-2010	Zoning - Change zoning in City Block 4530 (1617 Burd, 5578 Cote Brilliante, and 1526, 1530, 1602, 1610, 1620, 1622 Clara) to "C" Multiple-Family Dwelling District		(not codified)
68569	2-23-2010	Real Property - Authorizing and directing the Mayor and Comptroller to execute a Quit Claim Deed in the amount of $820.00 to remise, release and forever quit-claim unto Glenmark Industries, Inc. City-owned property in City Block 4220 at 543 Calvary Ave.		(not codified)
68570	2-23-2010	Business Licenses - Neighborhood Consent Petition relating to the application for a license to operate a massage or public bath establishment; amending Section 1 of Ord. 57071, codified in Section 8.24.040 of the Revised Code	1	8.24.040
68571	2-23-2010	Business Licenses - Neighborhood Consent Petition relating to the application for a license to operate a tattoo parlor; amending a portion of Section 1 of Ord. 57404, codified in Section 8.97.040 of the Revised Code	1	8.97.040
68572	2-23-2010	Port Authority Commission - Authorizing and directing the Mayor and the Comptroller to lease certain land and mooring rights on the Unimproved Wharf bounded on the north by the eastward prolongation of the north curb of Branch Street, on the east by the Mississippi River, on the south by a line 842 feet north of and parallel to south line of Brooklyn Street, and on the west by that portion of the unimproved wharf east of the right-of-way of the Flood Control project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68573	2-23-2010	Port Authority Commission - Authorizing and directing the Mayor and Comptroller to enter a lease agreement between the City of St. Louis and Terminal Railroad Association, an Illinois Corporation, for certain land on the Unimproved Wharf and for mooring privileges for a period of ten years		(not codified)
68574	2-23-2010	Port Authority Commission - Authorizing and directing the Mayor and the Comptroller to enter a lease agreement between the City of St. Louis and Lewis & Clark Marine, Inc., for certain land on the Unimproved Wharf and for mooring privileges for a period ten years		(not codified)
68575	2-23-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Olive St./ 15th St./Chestnut St./17th St. Redevelopment Area		(not codified)
68576	3- 9-2010	Amending Section 903.1 of Chapter 25.32.480 of Revised Code of the City of St. Louis pertaining to Application and Neighborhood Consent Petition pertaining to rooming houses, boarding houses, dormitories or hotels	1	25.32.480
68577	3- 9-2010	Vacation - at Olive Lane from Skinker eastwardly approximately 230 feet to terminus at Metrolink right-of-way in St. Louis City		(not codified)
68578	3- 9-2010	Real Property -Authorizing and directing the Mayor and Comptroller to execute a purchase and sale agreement and quit claim deed to Washington University for certain City-owned property in City Block 4854, known as Lot 1, containing .42 acres more or less for sum of $95,000.00		(not codified)
68579	3- 9-2010	Amending Ord. 59558 by enacting a new Section allowing for acquisition of real and personal property rights or interests including easements by purchase, lease, eminent domain for completion of Grand Blvd. Viaduct		(not codified)
68580	3- 9-2010	Amending Ord. 65099 by enacting a new Section allowing for acquisition of real and personal property rights or interests including easements by purchase, lease, eminent domain for completion of Wellington Ave. Bridge Reconstruction over River Des Peres		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68581	3- 9-2010	Airport - Authorizing and directing the Director of Airports and Comptroller to enter into and execute a Concession Agreement between the City and Commerce Bank, N.A. to design, construct, operate, manage and maintain an Automated Teller Machine (ATM) Concession at the Airport		(not codified)
68582	3- 9-2010	Airport - Authorizing and directing the Director of Airports and Comptroller to enter into and execute a Concession Agreement between the City and Bank of America, N.A. to design, construct, operate, manage and maintain an Automated Teller Machine (ATM) Concession at the Airport		(not codified)
68583	3- 9-2010	Airport - Authorizing and directing the Director of Airports and Comptroller to enter into and execute a Restated and Amended Agency Agreement between the City and The Directory Graphics, L.L.C. to design, construct, operate, manage, and maintain reservation centers at the Airport		(not codified)
68584	3- 9-2010	Grant - Authorizing and directing the Fire Chief to enter into and execute a Grant Agreement in the amount of $454,185.00 with U.S. Department of Health & Human Services, Health Resources and Services Administration to fund a public access defibrillator demonstration project, and to expend funds by entering into contracts for grant purposes		(not codified)
68585	3- 9-2010	Redevelopment Agreement - Authorizing the execution of an amendment to Redevelopment Agreement between the City and ParkPacific, TIF, Inc		(not codified)
68586	3- 9-2010	Traffic - Establishing a four way stop site at the intersection of Virginia Ave. and Eichelerger Street		(not codified)
68587	3- 9-2010	Community Improvement District - Approving the petition to establish the CWE Business Community Improvement District		(not codified)
68588	3-16-2010	Street vending - Amending Ordinance 650612; pertaining to street vending within the Midtown Neighborhood, Tiffany Neighborhood and Covenant Blu/Grand Center Neighborhood Vending District; bounded by Chouteau Ave. on the south, Leffingwell Ave. on the east, Vandeventer Ave. on the west, and Delmar Blvd. and Olive Street via North Compton Ave. on the north	1 Added	8.108A.030 J.—L.

Ordinance Number	Date	Description	Section	Section this Code
68589	3-16-2010	Transportation Development District - Authorizing the execution of a Transportation Project Agreement between the City, City Hospital Laundry Master Landlord, LLC, and City Hospital Laundry Transportation Development District		(not codified)
68590	3-16-2010	Redevelopment Plan/Area/Project - Designating the 1110 Olive Redevelopment Area as a "redevelopment area" pursuant to the Real Property Tax Increment Allocation Redevelopment Act; Approving Redevelopment Plan and Project; Adopting Tax Increment Financing within the Redevelopment Area; establishing the 1110 Olive Special Allocation Fund		(not codified)
68591	3-16-2010	Redevelopment Agreement - Authorizing the execution of a Redevelopment Agreement between the City and Infomedia, Inc. designating Infomedia, Inc. as developer of the redevelopment area		(not codified)
68592	3-16-2010	Vacation - at a portion of Halliday Ave. being in City Block 1447		(not codified)
68593	3-16-2010	Redevelopment Agreement - Authorizing the execution of an amendment to Redevelopment Agreement between the City and Hepner, Smith, Airhart & Day, Inc.		(not codified)
68594	3-16-2010	Litter - Requiring the operator of a drive through restaurant to provide at least one authorized receptacle, accessible to its drive through patrons from their automobiles	1, 2	11.18.060
68595	3-16-2010	Excise- Prohibiting the issuance of any package or drink liquor licenses for any premises within the boundaries of the 24th Ward Liquor Control District for a period of three years with the exception of allowing, during the moratorium period, the transfer of existing licenses, under certain circumstances, and the issuance of a drink license to persons operating a restaurant at a previously non-licensed premise		(not codified)
68596	3-16-2010	Personnel- Procedures for negotiating memoranda of understanding for City employees which include good faith salaries, conditions of employment, and bargaining process		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68597	3-16-2010	National Food Code - Adopting Chapters 1 to 7 of the National Food Code, 2009 Edition, pertaining to safe food preparation and handling, utilized by U.S. Department of Health & Human Services, Public Health Service, and Food & Drug Administration	1 Rpld	11.42.001—11.42.208,
				11.42.276,
				11.42.302—11.42.934
			2 Added	11.42.010
			3 Added	11.42.020—11.42.224
			4 Added	11.42.226—11.42.232
			5 Added	11.42.234
68598	3-16-2010	Vehicle Break-Ins - Adding a new Chapter under Title 15 regarding the offenses against vehicle break-ins against City residents and its visitors	1—5 Added	15.83.010—15.83.050
68599	3-16-2010	Streets/Public Works Project - Amending Ord. 67385 by enacting an additional Section allowing for the acquisition of real and personal property rights including easements by purchase, lease, eminent domain for the completion of the Halls Ferry Circle Reconstruction Project		(not codified)
68600	3-16-2010	Library- Authorizing the Mayor and the Comptroller to execute a Quit-Claim Deed to the Board of Directors of the City of St. Louis Municipal Library District (the "Library") to convey the Library property to the Library and to convey the Park Property (Lucas Park) from the Library to the City		(not codified)
68601	3-16-2010	Providing for the Termination of the Agreement authorized by Ord. 63383 re: the West End Community Center between the City and the West End Community Center Restoration Corp.; Approving an Operating Lease Agreement of the West End Community Center between the City and Demetrious Johnson Charitable Foundation		(not codified)
68602	3-16-2010	Enacting a curfew for Colonel George H. Blase Park, formerly North Riverfront Park with an exception for persons holding permits		(not codified)
68603	3-16-2010	Vending - Amending Section 1 of Ord. 66680 to adjust boundaries of the Downtown Vending District; repealing Ord. 68108 which established the Civic Center Vending District; repealing Section 30 of Ord. 65061 as amended and adopting a new section providing rules and regulations for vending businesses in the Downtown Vending District	1	8.108A.030 A.
			2 Rpld	8.108A.030 I.
			Rpld	8.108A.315
			3, 4	8.108A.300, 8.108A.310

Ordinance Number	Date	Description	Section	Section this Code
68604	3-16-2010	Street Code - Pertaining to Streets, Sidewalks and Bridges of the City of St. Louis, which repeals all ordinances presently codified as Title 20 of the Revised Code, and replaces a new ordinance on same subject matter	1 Rpld	20.02.010, 20.02.020,
				20.04.010—20.04.070,
				20.06.010—20.06.170,
				20.08.010—20.08.030,
				20.12.010—20.12.040,
				20.14.010—20.14.090,

Ordinance Number	Date	Description	Section	Section this Code
				20.16.010—20.16.070,
				20.18.010—20.18.190,
				20.20.010—20.20.050,
				20.22.010—20.22.040,
				20.24.010—20.24.080,
				20.26.010—20.26.290,
				20.28.010—20.28.140,
				20.30.010—20.30.150,
				20.32.010—20.32.150,
				20.34.010—20.34.060,
				20.36.010—20.36.080,
				20.38.010—20.38.170,
				20.40.010—20.40.040,
				20.42.010—20.42.040,
				20.46.010—20.46.030,
				20.50.010—20.50.090,
				20.51.010—20.51.090,
				20.52.010, 20.52.020,
				20.53.010—20.53.100,
				20.54.010—20.54.080,
				20.55.010—20.55.090,
				20.56.017,

Ordinance Number	Date	Description	Section		Section this Code
					20.58.010—20.58.130,
			2	Added	20.12.010—20.12.040
			3	Added	20.14.010—20.14.090
			4	Added	20.16.010—20.16.070
			5	Added	20.18.010—20.18.290
			6	Added	20.20.010—20.20.050
			7	Added	20.22.010—20.22.040
			8	Added	20.24.010—20.24.080
			9	Added	20.26.010—20.26.290
			10	Added	20.28.010—20.28.170
			11	Added	20.30.010—20.30.150
			12	Added	20.32.010—20.32.150
			13	Added	20.34.010—20.34.060
			14	Added	20.36.010—20.36.080
			15	Added	20.38.010—20.38.170
			16	Added	20.40.010—20.40.040
			17	Added	20.42.010—20.42.0240
			18	Added	20.46.010—20.46.030
			19	Added	20.50.010—20.50.090
			20	Added	20.51.010—20.51.090
			21	Added	20.52.010, 20.52.020
			22	Added	20.53.010—20.53.100

Ordinance Number	Date	Description	Section	Section this Code
			23 Added	20.54.010—20.54.080
			24 Added	20.55.010—20.55.090
			25 Added	20.56.017
			26 Added	20.58.010—20.58.130
68605	3-16-2010	Election Rules/Procedures - Relating to the payment of all taxes and Missouri Ethics Commission fees by candidates for elective City offices	Added	2.08.430
68606	3-16-2010	Digital Signs/Billboards - Providing for a 12-month moratorium on the erection, construction or installation of new digital sign, including any digital outdoor general advertising device to provide time for a study to be conducted to determine appropriate regulations for signs and devices		(not codified)
68607	3-16-2010	Parks and Forestry - Pertaining to the Planting, Maintenance, Preservation and Management of Trees, Shrubs and Plants; containing legislative findings and declarations, repealing Ordinance 49772, 56447 and 64804; with definition of terms and administrative, regulatory and penalty provisions	2 Rpld	22.48.010—22.48.250
			1 Added	22.48.010
			3—27Added	22.48.020—22.48.260
68608	3-16-2010	Transportation Development District - Authorizing the Execution of a Transportation Project Agreement between the City and Railway Exchange Building Transportation Development District		(not codified)
68609	3-16-2010	Streets/Public Works - Authorizing the 2010 St. Louis Works and the 50/50 Sidewalk Programs City Wide providing for the construction and reconstruction of gutters, streets, driveways, spot curbs, sidewalks, alleys, traffic controls, etc. appropriating $4,800,000.00 from the Street Improvement Fund		(not codified)
68610	3-16-2010	Vacant Building Initiative Fund - Pertaining to a Registration fee for certain buildings and structures, repealing Ord. 64678 and enacting a new ordinance requiring establishing semiannual registration fee of $200.00 to be charged to the owner of any parcel of residential property improved by a residential structure, or commercial property improved by a structure containing multiple dwelling units, which has been vacant for at least six months and is in violation of building code	2—9	25.01.030

Ordinance Number	Date	Description	Section	Section this Code
68611	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the E. Grand/N. Florissant/Ferry/Blair Redevelopment Area		(not codified)
68612	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4462 Washington Ave. Redevelopment Area		(not codified))
68613	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2307 Shenandoah Ave. Redevelopment Area		(not codified))
68614	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Farrar St./25th St./Mallinckrodt St. Scattered Sites Redevelopment Area		(not codified)
68615	3-29-2010	Streets - Authorizing the Street Commissioner to honorarily designate the 1400 block of Garrison Ave. as "Pastor Lee Tyler Ave."		(not codified)
68616	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 6308 Alabama Ave. Redevelopment Area		(not codified)
68617	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2718 Indiana Ave. Redevelopment Area		(not codified)
68618	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 6027 Westminster Place Redevelopment Area		(not codified)
68619	3-29-2010	Special Use District - Establishing the Greater Ville Commercial Area Special Use District in the vicinity of Dr. Martin Luther King Drive, Homer G. Phillips Hospital and Williams School		(not codified)
68620	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Dutchtown Scattered Sites IV Redevelopment Area		(not codified)
68621	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4753 Michigan Ave. Redevelopment Area		(not codified)
68622	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4370 Manchester Ave. Redevelopment Area		(not codified)
68623	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 3200 Miami St. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68624	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4104-06 Flad Ave. Redevelopment Area		(not codified)
68625	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 5235 Page Blvd. Redevelopment Area		(not codified)
68626	3-29-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4101-43 and 4134-40 N. Newstead Ave. & 4406 Lee Redevelopment Area		(not codified)
68627	3-29-2010	Tax Increment Revenue Notes - Issuance and Delivery of Notes for the Park Pacific Redevelopment Project		(not codified)
68628	3-29-2010	Tax Increment Revenue Notes - Issuance and Delivery of Notes for the 1111 Olive Redevelopment Project		(not codified)
68629	3-29-2010	Vacation - at the easternmost 106.45' + 1.7' of the 15-foot wide east/west alley in City Block 5434 bounded by Riverview, Newby, Canaan and Edna in the City of St. Louis		(not codified)
68630	3-29-2010	Police Department - Adopting of all Police Manual Policies and Special Orders, as well as the adoption of current Police Department employment qualifications, grievance processes, compensation and residency exemptions if legislation is passed by the State of Missouri which enables the City to maintain its own police force		(not codified)
68631	3-29-2010	Redevelopment Plan/Project/Agreement - Authorizing the execution of a Cooperation Agreement between the City and GROUP360, Inc. and authorizing reimbursement to GROUP360, Inc; authorizing the execution of the First Amendment to Redevelopment Agreement between the City and 1227 Washington TIF, Inc		(not codified)
68632	3-29-2010	Redevelopment Plan/Project/Agreement - Authorizing the execution of a Redevelopment Agreement between the City and Paramount Property Development LLC		(not codified)
68633	3-29-2010	Tax Increment Revenue Notes - Issuance and Delivery of Notes for the Magnolia-Thurman Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68634	3-29-2010	Redevelopment Plan/Area/Project - Designating a portion of the City as a redevelopment area known as the Railway Exchange Building Redevelopment Area pursuant to the Real Property Tax Increment Allocation Redevelopment Act; Establishing the Railway Exchange Building Special Allocation Fund		(not codified)
68635	3-29-2010	Redevelopment Agreement - Authorizing the execution of an Amendment to the Redevelopment Agreement between the City and Pelican Court Development Corporation; Establishing the Grand and Shenandoah Special Allocation Fund		(not codified)
68636	3-29-2010	Redevelopment Plan//Project/Agreement - Authorizing the execution of a Redevelopment Agreement between the City and Railway Exchange Building TIF, Inc; Designating Railway Exchange Building TIF, Inc. as Developer of the Redevelopment Area		(not codified)
68637	3-29-2010	Bonds - Authorizing the City to assign Phase 1 Available Revenues and upon payment and cancellation of any Phase 2 Obligations, the Phase 2 Available Revenues for the purpose paying the principal and interest on certain bonds to be issued by the City or the Industrial Development Authority of the City; City and RNY, LLC preparing a redevelopment plan for The Railway Exchange Building		(not codified)
68638	4-21-2010	Fuel Gas Code - Repealing Ordinance 65022; Adopting the International Fuel Gas Code, 2009 Edition with changes, as the Fuel Gas Code of the City for control of building and structures; and containing a savings clause	1 Rpld	25.07.010—25.07.560
			2 Added	25.07.010
			3 Added	25.07.020—25.07.120
			6 Added	25.07.130
68639	4-21-2010	Mechanical Code - Repealing Sections 1, 2 and 3 and Chapter 1 of Ord. 65021 and Ord. 65926; Adopting the International Mechanical Code, 2009 Edition with changes, as the Mechanical Code of the City for the governing of the design, installation, construction and maintenance of mechanical systems	1 Rpld	25.03.010—25.03.730
			2 Added	25.03.010
			3 Added	25.03.020—25.03.390
			4 Added	25.03.400
68640	4-30-2010	Redevelopment Plan/Area/Project - Designating a portion of the City as a redevelopment area known as the 500 N. Kingshighway Redevelopment Area pursuant to the Real Property Tax Increment Allocation Redevelopment Act; Establishing the 500 N. Kingshighway Special Allocation Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68641	4-30-2010	Community Improvement District - Approving the Petition for the creation of The Crowne Plaza Community Improvement District submitted by STL 200 4th LLC		(not codified)
68642	4-30-2010	Redevelopment Project/Agreement - Authorizing execution of a Cooperation Agreement between the City and Polsinelli Shughart, PC to redevelop all or partial five floors of a commercial building at 100 South 4th Street		(not codified)
68643	6-25-2010	Annual Operating Budget Plan for Fiscal Year July 2010 to July 2011—Making appropriation in the amount of $937,627,402.00 for payment of Interest, Expenses and Principal of the City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses of City Government for Fiscal Year beginning July 1, 2010 and ending June 30, 2011		(not codified)
68644	5-27-2010	General Revenue Fund - Providing for the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its general revenue fund for calendar year ending December 31, 2010, and remaining uncollected and other revenues remaining to be collected and deposited in the General Revenue Fund in the fiscal year ending June 30, 2011 is $449,984,000.00		(not codified)
68645	6- 2-2010	Convention Center - Authorizing and directing the Mayor and the Comptroller to execute an Amendment to the operating lease for the convention and sports facility (Edward Jones Dome) to change provisions related to casualty insurance		(not codified)
68646	6- 2-2010	Streets - Authorizing and Directing the Street Commissioner to designate the 5500 block of Page Street as "Rev. James Edward Cook Street"		(not codified)
68647	6- 2-2010	Vacation - at 20 foot wide north/south alley in City Block 4530 bounded by Cote Brilliante, Burd, Dr. Martin Luther King and Clara		(not codified)
68648	6- 2-2010	Bonds—Authorizing and directing the Comptroller to renew a credit facility (the "Bank of America Credit Facility") previously obtained for the purpose of securing the outstanding City Justice Center Bonds		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68649	6- 2-2010	Airport/Public Work and Improvement Program - Authorizing a Fifth Supplemental Appropriation in the amount of $3,000,000.00 from the Airport's FAA Land Sale Account into the Noise Mitigation Program for the payment of costs authorized therein		(not codified)
68650	6- 2-2010	Airport/Public Work and Improvement Program - Authorizing a First Amendment to Section 1 of the Airport Schedule F CIP Project Ord. 67357 increasing total estimated cost of the Airport Projects to $200 million		(not codified)
68651	6- 2-2010	Airport/Transfer of Funds - Authorizing transfers in the total amount of $1,700,000.00 from the Airport Development Fund into the Airport Contingency Fund; further authorizing transfers of funds in the total amount of $1,700,000.00 from the Airport Contingency Fund to the Airport Revenue Fund for the Air Service Incentive Program		(not codified)
68652	6- 2-2010	Airport/Agreement and Contract of Sale - Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the "Agreement and Contract of Sale" between Lambert Airport and Hunter Engineering Co. for surplus land		(not codified)
68653	6- 2-2010	Airport/Agreement and Contract of Sale - Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the "Agreement and Contract of Sale" between Lambert Airport and David & Charlene Shupp		(not codified)
68654	6-10-2010	Cell Phones - Repealing Ord. 63999, codified as Chapter 4.63 of the Revised Code, and in lieu thereof a new Chapter 4.63 substituted which includes provisions for regulating the reimbursement of personal cellular telephone usage costs for official City business	1 Rpld	4.63.010, 4.63.020
			Added	4.63.010—4.63.030
68655	6- 2-2010	Public Works and Improvement Project - Establishing a public works and improvement project for the construction of the South Grand Great Streets Improvements - Phase 2 between Arsenal Street and Utah Street		(not codified)
68656	6- 2-2010	City Court - Making it a violation to not appear before the Municipal Division of the Circuit Court after being lawfully summoned to answer to lawful charges for violations of municipal ordinances	1—3 Added	3.08.420

Ordinance Number	Date	Description	Section	Section this Code
68657	6- 2-2010	Air Pollution - Repealing Ord. 65442 and Ord. 65645 pertaining to the regulation and control of air pollution and enacting a new ordinance re: same subject matter	1 Rpld	11.34.010—11.34.290
			Rpld	11.35.010—11.35.070
			2—25Added	11.34.010—11.34.240
			27 Added	11.34.250
68658	6- 7-2010	City Public Transit Sales Tax - Providing for the imposition of a City-wide sales tax of one-quarter of one percent for transportation purposes (passage at November 4, 1997 election)	1—3 Added	5.25.010—5.25.030
68659	6- 7-2010	Port Authority - Authorizing and directing the Mayor and the Comptroller to enter into a lease agreement between the City and The Great Rivers Greenway District for certain land on the Unimproved Wharf for a period of 10 years commencing on the date of execution with 3 five-year mutual options		(not codified)
68660	6- 7-2010	Vacation - at a 51 foot wide portion of Elliott Ave. from Montgomery St. southwardly 175 feet to a point vacated previously by Ord. 63750		(not codified)
68661	6-22-2010	Zoning - Changing the zoning of property from "F" Neighborhood Commercial District to the "C" Multiple-Family Dwelling District in City Blocks 1004 and 1005 (2955, 2957, 2954 and 2956 Thomas)		(not codified)
68662	6-22-2010	Zoning - Changing the zoning of property from "F" Neighborhood Commercial District to the "D" Multiple-Family Dwelling District in City Block 1132.04 (1451 & 1453-57 Dodier)		(not codified)
68663	6-22-2010	Complete Streets - Relating to a "complete streets" policy for the City, stating guiding principles and practices so that transportation improvements are planned, designed and constructed to encourage walking, bicycling and transit use while promoting safe operations for all users	1—4 Added	3.110.065
68664	6-22-2010	Public Works and Improvement Project - Establishing a public works and improvement project for the construction of the Broadway and 7th Improvement Project involving infrastructure improvements on Broadway and South Broadway from Park Avenue and 7th Street to the Interstate 55 Overpass		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68665	6-22-2010	Grant — Ratifying the actions of BPS and the Mayor in submitting an Energy Efficiency and Conservation Strategy (the "EECBG Strategy") to the U.S. Department of Energy ("DOE") to apply for funding under the Federal American Recovery and Reinvestment Act ("ARRA") Energy Efficiency and Conservation Block Grant (EECBG); Authorizing and directing the Mayor and the Comptroller to enter into and execute agreements with DOE for the receipt of 2010 EECBG funds in the amount of $3,717,500.00		(not codified)
68666	6-22-2010	Bonds - Authorizing and directing the St. Louis Municipal Finance Corporation to execute and deliver a Second Supplemental Indenture of Trust re: to its Carnahan Courthouse Leasehold Revenue Refunding Bonds, Series 2006A for the general welfare, safety and benefit of the citizens of the City		(not codified)
68667	6-24-2010	Parking - Making appropriation in the amount of $13,490,866.00 for payment of operating expenses, capital equipment and improvement expenses, including lease purchase agreements involving Parking Division assets, and debt service expenses of the Parking Division of the Treasurer's Office		(not codified)
68668	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 6986 Mardel Ave. Redevelopment Area		(not codified)
68669	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 5124 Shaw Ave. Redevelopment Area		(not codified)
68670	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 5212 Louisiana Ave. Redevelopment Area		(not codified)
68671	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 6300 and 6321 Minnesota Ave. Redevelopment Area		(not codified)
68672	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 7211 Pennsylvania Ave. Redevelopment Area		(not codified)
68673	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 1521 Washington Ave. Redevelopment Area		(not codified)
68674	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2612 S. Compton Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68675	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 3500 Illinois Ave. Redevelopment Area		(not codified)
68676	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2861 Salena Street Redevelopment Area		(not codified)
68677	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the N. Newstead Ave./Evans Ave./Lexington Ave. Redevelopment Area		(not codified)
68678	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2701 Armand Place Redevelopment Area		(not codified)
68679	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 701 N. Grand Blvd. Redevelopment Area		(not codified)
68680	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2 Maryland Plaza Redevelopment Area		(not codified)
68681	6-24-2010	Port Authority - Authorizing and directing the Mayor and the Comptroller to enter into a lease agreement between the City and ACL Transportation Services, LLC for mooring privileges on certain land on the Unimproved Wharf for a period of 10 years commencing on the date of execution with 3 5-year mutual options		(not codified)
68682	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 7078, 7082, 7085 Bancroft Ave. Redevelopment Area		(not codified)
68683	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 2432 N. Spring Ave., 3630 N. Market St., 3616 Garfield Ave., 2411 Fall St. Redevelopment Area		(not codified)
68684	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 3435 Indiana Ave. Redevelopment Area		(not codified)
68685	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4366 Manchester Ave. Redevelopment Area		(not codified)
68686	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 4455 Arco Ave. Redevelopment Area		(not codified)
68687	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 3315 Russell Blvd. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68688	6-24-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the 5102 Wicklow Place Redevelopment Area		(not codified)
68689	6-24-2010	Vacation - at Hickory from Compton to Ranken and Virginia from LaSalle to Rutger; City Blocks 2159, 2160, 2163 and 2164		(not codified)
68690	6-24-2010	Transportation - Appropriating $19,227,000.00 out of the Transportation Trust Fund to the Bi-State Development Agency for transportation purposes; further providing that the appropriation is conditional upon Bi-State supplying E & A an annual evaluation report		(not codified)
68691	6-24-2010	Transit Sales Tax adopted and approved by the voters on August 2, 1994, directing the Treasurer of the City to deposit funds received pursuant to sales tax into the "City Public Transit Sales Tax Trust Fund - Account One in the amount of $9,975,000.00 to Bi-State for certain purposes		(not codified)
68692	6-24-2010	Transit Sales Tax adopted and approved by the voters on November 4, 1997, directing the Treasurer of the City to deposit funds received pursuant to sales tax into the "City Public Transit Sales Tax Trust Fund" - Account Two in the amount of $9,975,000.00 to Bi-State for certain purposes		(not codified)
68693	6-24-2010	Ford Building Residential Parking District - Authorizing the Traffic & Transportation Administrator to designate the location and restrictions for curb parking of residential parking zones within the Ford Building Residential Parking District	1—6 Added	17.106.010—17.106.060
68694	6-25-2010	Water Rates - Finding, determining and declaring that an increase in certain water rates is necessary for certain purposes; Repealing Ord. 67919, parts of which are presently codified as Section 23.04.220, 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, and 23.20.040, Revised Code; enacting nine new sections relating to the same subject	3	23.16.025
			5	23.16.040
			6	23.18.070
			7	23.20.020
			8	23.20.030
			9	23.20.040
			10	23.16.020
			11	23.06.130,
				23.04.220
68695	6-25-2010	Grant — Authorizing and directing the Mayor and Comptroller to enter into and execute agreements with the Missouri Department of Economic Development ("MoDED") for CDBG Disaster Grants in the amount of $7,290,338.00		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68696	6-25-2010	Budget - Authorizing a supplemental appropriation; amending Ord. 68337, referred as the City's Annual Operating Plan for Fiscal Year 2009-2010; appropriating and setting apart revenues from Capital Funds and other special revenue funds to address projected revenue shortfalls in the General Fund for the current fiscal year in the amount of $5,239,000.00		(not codified)
68697	6-28-2010	Quit-Claim Deed - Authorizing and directing the Mayor and Comptroller to execute a Quit-Claim Deed to remise, release and forever quit-claim unto Rose A. Clark certain City-owned property located in City Block 4809 in the amount of $16,300.00		(not codified)
68698	7- 2-2010	Solid Waste - Relating to Solid Waste Collection, removal and disposal/recycling; providing that beginning immediately, a Solid Waste Services Fee of $11.00 per Dwelling Unit per month and that such fees shall be payable at such times as shall be determined by Refuse Commissioner and Collector of Revenue	1—10Added	11.02.127
68699	7- 2-2010	Pertaining to Curfew in Buder Park; Repealing Ord. 66988, codified in Section 22.18.026 of the Revised Code as prohibiting idling, wandering, strolling, etc. in or upon the confines of Buder Park or public areas adjacent to park between hours of 7:00 p.m. and 10:00 a.m.	1	22.18.026
68700	7- 9-2010	Development Agreement - Approving and authorizing the City to execute a Development Agreement with Hallmark Hotels, LLC proposing to improve an approximate 600-car parking garage on the hotel's property		(not codified)
68701	7- 9-2010	Development Agreement - Authorizing the City to enter into a Development Agreement with Peabody Investments Corp.; authorizing the City to issue its Taxable Industrial Development Revenue Bonds in the amount of $50,000,000.00 for the purpose of providing funds to pay the costs of acquiring certain equipment for an industrial development project in the City		(not codified)
68702	7- 9-2010	Streets - Authorizing and directing the Street Commissioner to designate the 5600 block of Page Avenue as "Rev. Herman Gore Sr. Blvd."		(not codified)
68703	7- 9-2010	Streets - Authorizing and directing the Street Commissioner to designate the 1200 block of Temple Avenue as "Rev. Herman Gore Jr. Place"		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68704	7- 9-2010	Streets - Authorizing and directing the Street Commissioner to designate the 5500 block of Cates Avenue as "Virvus Jones Way"		(not codified)
68705	7- 9-2010	Collector of Revenue - Relating to the appointment of and salaries of certain Employees in the Collector of Revenue's Office by repealing Ord. 68541 and adopting 11 new sections	1 Rpld	4.44.010—4.44.060
			2—9 Added	4.44.010—4.44.080
68706	7- 9-2010	License Collector - Repealing Ord. 68118 re: the appointment and rates of compensation of certain employees of the License Collector and enacting a new ordinance dealing with same subject matter	Rpld	4.28.010—4.28.120
			1—13Added	4.28.010—4.28.130
68707	7- 9-2010	Parking Division/Treasurer's Office - Relating to position classifications and salaries of employees in the Parking Division of the Treasurer's Office and holidays and furlough days for employees; Repealing Ord. 68120 and enacting new sections relating to same subject matter	2	4.30.010
			3	4.30.012
			4	4.30.015
			5	4.30.020
			6	4.30.021
			7	4.30.022
			8	4.30.023
			9	3.30.025
			10 Added	4.30.026
			11	4.30.024
68708	7- 9-2010	Sheriff's Office - Repealing Ord. 68123; Establishing the salaries of employees in the Sheriff's Office and enacting a new ordinance fixing the annual rate of compensation of command personnel and deputies appointed to assist in the performance of duties of the Sheriff	1 Rpld	4.36.010—4.36.150
			2—16Added	4.36.010—4.36.150
68709	7- 9-2010	Treasurer's Office - Relating to position classifications and salaries of employees in the Treasurer's Office and holidays and furlough days for their employees; repealing Ord. 68121 and enacting new sections re: the same subject matter	2	4.26.015
			3	4.26.020
			4	4.26.021
			5	4.26.022
			6	4.26.023
			7	4.26.040
			8	4.26.050
			9	4.26.070
			10 Added	4.26.080
			11	4.26.060

Ordinance Number	Date	Description	Section	Section this Code
68710	7- 9-2010	Medical Examiner's Office - Regulating employer and working relationships between the City's Medical Examiner's Office, including a compensation plan, terms and conditions of employment, benefits, etc., repealing Ord. 68122	Rpld	4.54.010—4.54.220
			1—20Added	4.54.010—4.54.200
			22—25 Added	4.54.210—4.54.240
68711	7- 9-2010	Classified Service Employees - Regulating employer and employee working relationships between the City and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, etc., and authorization for a Deferred Compensation Plan	1—18	4.10.010—4.10.180
			19 Added	4.10.185
			20—22 Added	4.10.190—4.10.210
			23 Added	4.10.215
			24—29	4.10.220—4.10.270
68712	7- 9-2010	Employee Retirement System - Repealing Subsection 13 of Section 4 and Subsection 1 of Section 6 of Ord. 66511 and enacting new provisions freezing the sick leave and prohibiting the use of sick or medical leave in calculating benefits of future members hired after effective date of this ordinance	1	4.16.010
			2	4.16.030
68713	7- 9-2010	Submitting to the qualified voters a non-binding preferential vote as authorized under Article II Section 9 of the Charter to assist the Missouri General Assembly as to whether to return the governance of the Police Department to the control of the City		(not codified)
68714	7-13-2010	Housing Conservation District - Pertaining to the City Housing Conservation Program; repealing Section 17 of Ord. 67914 and enacting a new section re: an implementation schedule for same subject matter	2	25.56.150
68715	7-13-2010	Federal Fair Housing Act - Compliance with the Federal Fair Housing Act; intending to eliminate, reduce and remedy discrimination in housing, employment, education, services, public accommodations, etc.; Amending Sections 2, 5, 7, 8 and 9 of Ord. 67119	1	3.44.010
			2	3.44.040
			3—5	3.44.060—3.44.080
68716	7-13-2010	Licensing and Use of City Vehicles - Repealing Chapter 4.13 of the Revised Code and enacting a new Chapter 4.13 to require approval by resolution of the BOA upon recommendation of E & A to license a City motor vehicle, possess or use a motor vehicle owned or leased by the City; requiring a Vehicle Policy Manual and requiring identification of City-owned vehicles	1 Rpld	4.13.010—4.13.040
			Added	4.13.010—4.13.080

Ordinance Number	Date	Description	Section	Section this Code
68717	7-13-2010	Bonds - Authorizing and directing the issuance and sale by the St. Louis Municipal Finance Corporation or refunding bonds in order to refund a portion of its Leasehold Revenue Refunding Bonds, Series 2003A (Civil Courts Building Project)		(not codified)
68718	7-13-2010	Zoning - Changing the zoning of property from "F" Neighborhood Commercial District and "J" Industrial District to "C" Multiple-Family Dwelling District in CB 2159, 2160, 2163 and 2164 9 (S. Compton, LaSalle and Rutger)		(not codified)
68719	7-13-2010	Submitting to the qualified voters a proposed amendment to the Charter by repealing Section 24 of Article IV, and enacting a new Section 24, Article IV, relating to fines, providing for an election		(not codified)
68720	7-13-2010	Locust Central Business District—Amending the boundaries of the Locust Central Business District if approved by the voters		(not codified)
68721	7-13-2010	Locust Central Business District - Expanding the boundaries of the district; proposing to impose a tax on all property located in the district ballot measure		(not codified)
68722	7-22-2010	Streets - Designating 2100 block of 39th Street as Don & Elaine Burrus Blvd.		(not codified)
68723	7-22-2010	Vacation - 13th Street form Washington to Lucas in part of the 520 and 519 block.		(not codified)
68724	7-22-2010	Housing Conservation — Repealing Section 17 of Ordinance 67914 and enacting a new ordinance on the same subject matter	2	25.56.150
68725	7-22-2010	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4319 Ashland Ave.		(not codified)
68726	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for Dr. Martin Luther King Dr./Burd Ave./Cote Brilliante Ave/ Clara Ave.		(not codified)
68727	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4106 Cleveland Ave.		(not codified)
68728	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4527 Washington Blvd.		(not codified)
68729	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4206 Chouteau Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68730	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4457-73 Evans Ave.		(not codified)
68731	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for Sheridan Ave./ Garrison Ave./Thomas Street II		(not codified)
68732	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4116 Shenandoah Ave.		(not codified)
68733	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4025 Flora Pl.		(not codified)
68734	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 2653 January Ave.		(not codified)
68735	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 1901-09 Hebert St., 1901-05, 1915-21, 1904-10, and 1916-20 Sullivan, and 1441-53 Dodier St.		(not codified)
68736	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 1115-17 Tower Grove Avenue.		(not codified)
68737	7-22-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4650-72 and 4651-73 S. Spring Ave.		(not codified)
68738	7-22-2010	Redevelopment Plan -Approving an amendment to the blighting study and plan for the North Broadway Industrial Park dated 10-23-95		(not codified)
68739	7-22-2010	Redevelopment - Terminating the designation of the 4548 West Pine Redevelopment Area and dissolving the Special Allocation Fund established under tax increment financing		(not codified)
68740	7-22-2010	Redevelopment - Terminating the designation of the Cupples Station Redevelopment Area and dissolving the Special Allocation Fund established under tax increment financing		(not codified)
68741	7-22-2010	Streets - Designating 1500 block of Hebert Street as "Johnnie E. Owens Street."		(not codified)
68742	7-22-2010	Streets - Designating the 1300 block of Madison Ave. as "Walt Bowers Lane."		(not codified)
68743	9-20-2010	Circuit Attorney's Office/Pay Ordinance - Repealing Ord. 68542 allocating positions established to classes with grades and a schedule setting minimum and maximum salaries for such grades by repealing Section 2 and replacing said Section with provisions of this ordinance	1 Rpld	4.48.010—4.48.070
			2—7 Added	4.48.010—4.48.060

Ordinance Number	Date	Description	Section	Section this Code
68744	9-20-2010	Recorder of Deeds/Pay Ordinance - Relating to employees and salaries; Repealing Ord. 67804 and enacting a new ordinance re: same subject matter	2—11	4.34.010—4.34.100
68745	9-20-2010	Firemen's Retirement System - Pertaining to the Firemen's Retirement System; repealing Ord. 65541	1	4.18.386
68746	9-20-2010	Firemen's Retirement System - Pertaining to accumulated sick leave for employees who are members of the Fire Department and Firemen's Retirement System	1	4.18.386
68747	9-27-2010	Classified Service Employees - Establishing that the employees under the Classified Service Plan may be covered by The Occupational Safety and Health Act of 1970 (OSH Act)	1, 2 Added	4.10.280
68748	10- 8-2010	Excise—Repealing Ordinance 67598 and 67984 to the issuance of any package or drink liquor licenses for premises within the boundaries of the Third Ward Liquor Control District and enacting in lieu supplementary exemptions		(not codified)
68749	10-22-2010	Airport - Executing a Grant Agreement offered through the FAA of U.S. Department of Transportation associated with the rehabilitation of Runway 12R/30L (Keel sections from Taxiway Charlie to Taxiway Romeo and from Taxiway Hotel to Taxiway Lima) (Phase I - Design and FAA Reimbursable Agreement) in the amount of $817,122.00		(not codified)
68750	10-22-2010	Airport - Executing a Grant Agreement offered through the FAA of U.S. Department of Transportation associated with the design for reconstruction of Taxiway Delta (from Taxiway Kilo to Taxiway Juliet) (Phase I - Design Only) in the amount of $277,330.00		(not codified)
68751	10-22-2010	Airport - Executing a Grant Agreement offered through the FAA through the Department of Transportation associated with the design for reconstruction of Taxiway Echo (from Taxiway lima to Taxiway Juliet) (Phase I - Design Only) in the amount of $632,086.00		(not codified)
68752	10-22-2010	Quit-Claim Deed - Authorizing and directing the Mayor and Comptroller to execute a Quit-Claim Deed to Millennium Restoration and Development Corporation certain City-owned property located in City Block 1553 known as 3539 Wisconsin in the amount of $2,343.00		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68753	10-22-2010	Zoning - Changing the zoning property from "C" Multiple-Family Dwelling District to the "F" Neighborhood Commercial District, in City Block 2994(5274-76 and 5280-84 Page)		(not codified)
68754	10-22-2010	Redevelopment Area - Declaring existence of blighted areas in City Blocks 3904, 3917, 3918W, 3919W, 3953, 3959, 3960, 3961, 3962, 3963, 3966 (N and S), 3967 (N and S), 3968 (N and S), 3971 (N and S), 4586, and 4589		(not codified)
68755	10-22-2010	Redevelopment Agreement- Amending the Grand Center Redevelopment Area and approving a Tax Increment Financing Redevelopment Agreement for the Grand Center Redevelopment Area; Approving a 5th Amendment to the Redevelopment Agreement		(not codified)
68756	10-22-2010	Community Improvement District - Approving the Petition to establish The Railway Exchange Building Community Improvement District		(not codified)
68757	10-22-2010	Street Vending - Amending Section 3 of Ord. 68603 to adjust the boundaries of the Downtown Vending District and vending agreements with the Convention and Visitors Commission	1	8.108A.300
68758	10-22-2010	Authorizing and directing the Mayor and Comptroller to sell certain real estate belonging to the City located South of Victor Street and North of Dorcas Street and East of the West line of the wharf in "as-is" condition to STC Properties MO, LLC		(not codified)
68759	11- 3-2010	Vacation - Vacating the westernmost 382.265 feet of the 20 foot wide east/west alley in CB 2202 as bounded by Laclede, Grand, Forest Park, and Spring		(not codified)
68760	11- 3-2010	Streets - Designating the 4200 block of Gibson Ave. as "PO Robert J. Stanze Blvd."		(not codified)
68761	11- 3-2010	Streets - Designating the 1400 block of South Compton as "Rev Sammie E. Jones Street"		(not codified)
68762	11- 3-2010	Streets - Designating 2000 block of Dr. Martin Luther King Dr. as "Earl Wilson Jr. Way"		(not codified)
68763	11- 3-2010	Streets - Designating 1300 block of Tamm Ave. as "St. James Way"		(not codified)
68764	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 1219-21 Washington Avenue, Unit #200		(not codified)
68765	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3309-13 Meramec Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68766	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3700-3846 Market St.		(not codified)
68767	11- 3-2010	Redevelopment Plan — Modifying the 5 year tax abatement for the 3315 Russell Blvd. Redevelopment Area as authorized by Ordinance #68687		(not codified)
68768	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 2820 Victor St.		(not codified)
68769	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 2303 Shenandoah Ave.		(not codified)
68770	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4156 N. Newstead Ave.		(not codified)
68771	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4268 Hartford St.		(not codified)
68772	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3958 Botanical Ave.		(not codified)
68773	11- 3-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 7004 Lansdowne Ave.		(not codified)
68774	11- 3-2010	Streets - Designating the 3500 block of Park Avenue as "Dr. Amanda L. Murphy Ave.		(not codified)
68775	11- 3-2010	Streets - Designating the 4900 Warwick Ave. as "Rev. Earl E. Nance Ave"		(not codified)
68776	11- 3-2010	Vacation - Vacating a 97.22 foot portion of the 15 foot wide east/west alley in CB 3904 as bounded by Forest Park, Boyle, Duncan and Newstead and adjacent to the portions of the same alley previously vacated		(not codified)
68777	11- 3-2010	Vacation - Vacating May Street from Broadway to Second Street		(not codified)
68778	11- 3-2010	Vacation - Vacating a portion of Second Street beginning at Buchanan		(not codified)
68779	11- 3-2010	Streets - Designating 2700 block of Slattery Street as "Henry L. Walker Lane"		(not codified)
68780	11- 3-2010	Redevelopment Plan/Area/Project - Designating 4249 Michigan Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Area, establishing the 4249 Michigan Special Allocation Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68781	11- 3-2010	Redevelopment Agreement - Authorizing the execution of a Redevelopment Agreement between the City and Chariton TIF		(not codified)
68782	11- 3-2010	Tax Increment Revenue Notes - Issuance and Delivery of Notes for the 4249 Michigan Redevelopment Project		(not codified)
68783	11- 3-2010	Vacation -Vacating Monroe Street from 9th to 10th Street		(not codified)
68784	11- 8-2010	Authorizing a supplemental appropriation, amending 68642 which is the Annual Operating Flan for Fiscal Year 2010-2011 and appropriating and setting part a new special fund 1116 Metro Trash Services Fund from payments received by Bi-State Development Agency in the amount of $250,000 for trash receptacles and $66,660 to the Refuse Division for trash removal services as specified in a Memorandum of Agreement between the City and Metro	1 Added	5.98.010
68785	11- 8-2010	Excise - Prohibition the issuance of any package liquor license within the boundaries of the 22nd Ward Liquor Control District for a 3 year period		(not codified)
68786	11- 8-2010	Excise—Amending 68536, Section Four, paragraph 14.03.110 of the Excise Code pertaining to minimum quantity in original package liquor other than beer	1	14.03.110
68787	11- 8-2010	Grant - authorizing the Mayor to submit to the 2011 Annual Plan to HUD for funding under the CDBG, HOME, ESG and HOPWA programs and authorizing the Comptroller and Mayor to enter into and execute agreements with HUD for the receipt of the 2011 CDBG, HOME, ESG and HOPWA funds, and appropriating the sum of $22,462,421, the sum of $4,619,516, & 870,900, and $1,362,100 and authorizing the implementation of procedure to provide financial assistance under the various programs		(not codified)
68788	11- 8-2010	Building Division - Adoption of the International Building Code, 2009 Edition, including Appendix Chapters E, F, G, H, I and J	1 Rpld	25.01.010—25.01.760
			2 Added	25.01.010
			3 Added	25.01.020—25.01.650
			4 Added	25.01.660

Ordinance Number	Date	Description	Section	Section this Code
68789	11- 8-2010	Building Division - Adoption of the International Residential Code, 2009 edition with changes, including Chapters E, F, G, H, J, K, and M.	1 Rpld	25.11.010—25.11.290
			2 Added	25.11.010
			3 Added	25.11.020—25.11.470
			4 Added	25.11.480
68790	11- 8-2010	Building Division - Adoption of the International Existing Building Code, 2009 Edition, with changes including Appendix Chapters A and B	1 Rpld	25.20.010—25.20.370
			2 Added	25.20.010
			3 Added	25.20.020—25.20.280
			4 Added	25.20.290
68791	11- 8-2010	Building Division - Adoption of the International Property Maintenance Code, 2009 edition with changes	1 Rpld	25.32.010—25.32.500
			2 Added	25.32.010
			3 Added	25.32.020—25.32.510
			4 Added	25.32.520
68792	11- 8-2010	Building Division - Adoption of the International Energy Conservation Code, 2009 Edition	1 Rpld	25.13.010—25.13.040
			2 Added	25.13.010
			3 Added	25.13.020—25.13.040
			4 Added	25.13.050
68793	11-18-2010	Public Arts Trust Fund - Establishing a Public Arts Trust Fund, providing for funds to be administrated by the Regional Arts Commission, providing for use of funds, defining the powers and duties of the Regional Arts Commission, personnel duties, providing for disbursement from such funds	1—10Added	5.90.010—5.90.100
68794	11-18-2010	City Housing Conservation - Repealing Ordinance 67914, Section 17(A), Ordinance 68724 and Ordinance 68714	2	25.56.150
68795	11-18-2010	Vacation - Vacation of the easternmost 104.75 feet of the 15 foot east/west alley in CB 2101 as bounded by Hartford, Grand, Juniata and Spring		(not codified)
68796	11-18-2010	Streets - Designating 3300 block of Union Blvd. as "Eddie Mae Jones Blvd."		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68797	11-23-2010	Airport - Repealing Section 2 of Ordinance 49580 which pertains to the selection of an art committee by the mayor as codified in Section 18.16.020 and enacting in lieu a new section on the same subject	1, 2	18.16.020
68798	11-23-2010	Airport - Accepting and executing Amendment Number 1 dated 8-13-10 to that certain Grant Agreement for Project Number 3-29-0085-122-2009, dated 8-19-09 for a maximum federal obligation of $1,125,000		(not codified)
68799	11-23-2010	Development Plan - Approving a new City gaming development plan known as the Gaming Development Plan of the City of St. Louis, Report to the Missouri Gaming Commission, November 2010; terminating that certain lease and development agreement between the City and Chain of Rocks Joint Venture; affirming the actions of the Port Authority of the City to execute the actions of the Port Authority of the City to execute that certain development agreement between the Port Authority of the City and Casino Celebration		(not codified)
68800	11-23-2010	Airport - Authorizing and Directing the Director of Airports and the Comptroller to enter into and execute the 11th Amendment to the Indenture of Lease between the City and Lambert Field Fueling Facilities Corporation at Lambert International Airport		(not codified)
68801	11-23-2010	Vacation - Vacating a 2.02' wide strip on the west side of Euclid beginning at Forest Park and extending northwardly to a point and adjacent to CB 3885 as bounded by Laclede, Euclid, Forest Park and Kingshighway		(not codified)
68802	11-23-2010	Redevelopment Agreement - Repealing the Redevelopment Agreement between the City and 8000 Michigan TIF for the Redevelopment Area known as South Carondelet District #1 and authorizing the execution of a new redevelopment agreement between the parties		(not codified)
68803	11-23-2010	Redevelopment Agreement - Authorizing the execution of the Redevelopment Agreement between the City and Carondelet TIF, Inc. for the Redevelopment Area known as South Carondelet District #3		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68804	11-23-2010	Redevelopment Agreement - Authorizing the execution of the Redevelopment Agreement between the City and Carondelet TIF, Inc. for the Redevelopment Area known as South Carondelet District #4 and affirming the boundaries of the Redevelopment Area and specifying the legal description		(not codified)
68805	11-23-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for Dr. Samuel Shepard/Delmar/Franklin/N. Cardinal		(not codified)
68806	11-23-2010	Tax Increment Financing - Finding notices for required hearing were published and that the Tax Increment Financing Plans were making satisfactory progress		(not codified)
68807	11-23-2010	Streets - Designating the 4400 block of Washington Blvd. "Rev. James Brown Sr. Blvd."		(not codified)
68808	11-30-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for Hyde Park Scattered Sites IV		(not codified)
68809	12-13-2010	Excise - Prohibiting the issuance of any package or drink liquor licenses for currently non-licensed premises within the 10th Ward Liquor Control District		(not codified)
68810	12-13-2010	Zoning -District Map change from "C" District to "J" District in CB 1898 (2500-06, 2508, 2512-16 & 2518 Glasgow)		(not codified)
68811	12-13-2010	Zoning - District Map change from "A" District to "J" District in CB 4809 (6915 Bleeck)		(not codified)
68812	12-13-2010	Secondhand Junk Dealers - Repealing Ordinance 64311, presently codified as 8.82.050 and the registry and regulation of purchases by secondhand dealers and requiring a holding period for the purchase of jewelry, gold or silver	2	8.82.050
68813	12-13-2010	Excise - Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the 27th Ward Liquor Control District		(not codified)
68814	12-13-2010	Traffic -Establishment of a four way stop site intersection of McCausland Ave. and Hancock Ave.		(not codified)
68815	12-13-2010	Earnings Tax - Continuation of the Earnings Tax for a period of 5 years, providing for an election to determine whether to continue the tax for a period of 5 years	Added	5.22.023

Ordinance Number	Date	Description	Section	Section this Code
68816	12-21-2010	Heat up St. Louis - Authorizing the Comptroller to establish a "St. Louis Hope for Homeless Fund" to assist in eliminating homelessness in the City and to provide emergency utility assistance for the health and safety of low income families	1—4 Added	5.59.010—5.59.040
68817	12-21-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3404 Cherokee Street		(not codified)
68818	12-21-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3160 Ohio Ave.		(not codified)
68819	12-21-2010	Redevelopment Plan -Modifying the length of real estate tax abatement for the 1849 Case Ave. authorized by Ordinance 65628 and allowing for a 15 year tax abatement		(not codified)
68820	12-21-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3520 Oregon		(not codified)
68821	12-21-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4100 Union Blvd.		(not codified)
68822	12-21-2010	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3945 Russell Blvd.		(not codified)
68823	1-18-2011	Dog Park - Establishment of a Dog Park in CB 2777 on real property at 4742-4752 Alabama Ave. and regulated in accordance with the rules and regulations promulgated by the Director of Parks	1 Added	22.44.385
68824	1-18-2011	Parking - Establishing 5800 St. Louis Ave. Residential Parking District authorizing the Traffic Administrator to designate the location and restrictions for curb parking of residential parking zones within the 5800 St. Louis Avenue Residential Parking District	1—5 Added	17.110.010—17.110.050
68825	1-18-2011	Streets - Temporary Closure of traffic at Hornsby Ave. at the west curb line of Halls Ferry Rd.		(not codified)
68826	1-27-2011	Vacation - Vacating parts of CB 3236 as bounded by Espenschied, Reilly, Catalan, and Vulcan and parts of CB 3237 as bounded by Espenschied, Polk, Catalan and Reilly		(not codified)
68827	1-27-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3500 Watson		(not codified)
68828	1-27-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 2227 Arsenal Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68829	1-27-2011	Vacation - Vacating a 12 foot wide north/south alley in CB 269 as bounded by Biddle, Tucker, Carr and 13th St.		(not codified)
68830	2- 3-2011	Community Improvement District - establishing the Dutchtown Community Improvement District		(not codified)
68831	2- 3-2011	Building Division - Adoption of the National Electrical Code 2011 Edition, repealing Ordinance 65020	1 Rpld	25.02.010—25.02.050
			2 Added	25.02.010
			3 Added	25.02.020—25.02.050
68832	2- 3-2011	Grant - Authorizing and directing the Mayor and Director of Public Safety to execute a Grant Agreement with the Missouri Department of Public Safety to fund Juvenile Accountability Block Grant and appropriating the funds and authorizing expenditure of funds		(not codified)
68833	2- 3-2011	Cultural Resources - Extending the boundaries of the Fox Park Historic District as set forth in Ordinance 66098		(not codified)
68834	2- 3-2011	Zoning - District map change from "A" District to "C" District in CB 2734 and 2735 (3636-98 Taft & 4611 S. Grand)		(not codified)
68835	2- 3-2011	Authorization to submit a Substantial Amendment to the 2010 Annual Action Plan to HUD for entitlement funding under Section 1497 of the Wall Street Reform and Consumer Protection Act of 2010 for additional assistance in accordance with the second undesignated paragraph under the heading Community Planning and Development Fund in Title XII of Division A of the American Recovery and Reinvestment Act of 2009		(not codified)
68836	2- 3-2011	Building Division - Amending Appendix G of the Building Code by adopting new flood mapping as provided by FEMA	2	25.01.620
68837	2- 3-2011	Public Works and Improvement Project - Establishing a public works and improvement project for the construction of the 4th and Broadway Improvement Project involving Infrastructure improvements on 4th Street from Chouteau to Convention Plaza and Broadway from Chouteau Ave. to Convention Plaza		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68838	2- 3-2011	Agreement with the Missouri Highways and Transportation Commission for various highway infrastructure improvements and City road modifications around I-70 to serve requirements of local and through traffic in conjunction with the construction of the New Mississippi River Bridge		(not codified)
68839	2- 3-2011	Public Works & Improvement Project - Establishing a public works and improvement project for Kingshighway Blvd. Bridge over Union Pacific Railroad involving the reconstruction of the bridge and associated roadway improvements on Kingshighway Blvd from I-44 to Vandeventer Ave.		(not codified)
68840	2- 3-2011	Excise - Repealing Section 3 of Ordinance 68595 pertaining to the issuance of any package or drink liquor licenses for premises with the boundaries of the 24th Ward Liquor Control District and enacting a new section pertaining to same subject		(not codified)
68841	2- 3-2011	Excise - Repealing 68295 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the 20th Ward Liquor Control District		(not codified)
68842	2- 8-2011	Real Property - Quit Claim Deed to remise, release and forever quit-claim unto Ms. Bristol Crawford property located at CB 1745 and known as 3716 Vest		(not codified)
68843	2- 8-2011	Public Works & Improvements Project - Authorizing the 2011 St. Louis Works and the 50/50 Sidewalk Programs City Wide providing for the construction and reconstruction of gutters, streets, driveways, spot curbs, sidewalks, alleys, traffic controls, beautification, tree planting, resurfacing and related engineering adjustments listed herein in the 28th Ward		(not codified)
68844	2- 8-2011	Streets - Designating the 1900 block of Boardman Street as "Rigazzi's Place"		(not codified)
68845	2- 8-2011	Vacation - Vacating a portion of Parkview beginning at Taylor		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68846	2- 8-2011	Big Brothers Big Sisters of Eastern Missouri Fund - Establishing the Big Brothers Big Sisters of Eastern Missouri Fund to help provide assistance to spouses and children of all local and county police officers, firefighters, publicly-funded paramedics and EMTs and volunteer fire protection units, who have lost their lives performing their duty	1—4 Added	5.92.010—5.92.040
68847	2- 8-2011	Building Division - Repealing Table 106.5.2 of the Mechanical Code as contained in Ordinance 68639 and enacting a new table in lieu thereof	1	25.03.030
68848	2-14-2011	Airport - authorizing and directing the Mayor and Comptroller to accept and execute a grant agreement offered by the Missouri Highways and Transportation Commission for air rescue and firefighting training for the Airport for a maximum of $8,000		(not codified)
68849	2-14-2011	Zoning - Enacting new regulations in the Zoning Code and prohibiting digital outdoor advertising devices and digital signs in certain zoning districts	1 Rpld	26.68.010—26.68.180
			2 Rpld	24.44.010—24.44.060
			3 Added	26.68.010—26.68.190
68850	2-14-2011	Zoning - District Map change from "A" District to "C" District in CB 5141 (5316-26 Ruskin and 5301 Queens)		(not codified)
68851	2-14-2011	Airport - Authorizing First Supplemental Appropriation of $318,700 from the Airport's FAA Land Sale into the Unified Land Development Program Ordinance 65704		(not codified)
68852	2-14-2011	Airport - Authorizing Second Amendment to Section One of the Airport Schedule F CIP Project Ordinance 67357, increasing the total estimated costs of the Airport Projects by Twenty Million Dollars ($20,000,000) to Two Hundred Twenty Million Dollars ($220,000,000)		(not codified)
68853	2-14-2011	Airport - Transfer of $1,360,000 million of excess funds to transfer from the Airport Development Fund into the Airport Contingency Fund		(not codified)
68854	2-14-2011	Airport - Transfer of $1,436,816 million of excess funds to transfer from the Airport Development Fund to the Airport Contingency Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68855	2-14-2011	Port Authority - Establishment of a necessary bank account, EDA Receipts Account, at Pulaski Bank in the name of the City of St. Louis Port Authority for purposes of depositing (receiving) and disbursing Economic Adjustment Assistance grant funds awarded to the Port Authority from the US Department of Commerce Economic Development Administration for purpose of performing major repair and reconstruction of the South Dock		(not codified)
68856	2-14-2011	Lease - Authorizing First Amendments to certain leases with the Grace Hill Neighborhood Health Centers pertaining to changes in use and authorizing a federal interest required by the HHS under a grant		(not codified)
68857	2-14-2011	Redevelopment Agreement - Approval of the 7th Amendment to the Tax Increment Financing Redevelopment Agreement for the Grand Center Redevelopment Area and modifying the terms and timing of the sale and purchase of the property at 634 N. Grand with a certain Contract and Sale of Real Estate		(not codified)
68858	2-22-2011	License and Cooperation Agreement - Authorizing and directing the execution of a License and Cooperation Agreement between the City and City Hockey, Inc. for the design, construction, operation and maintenance of a synthetic ice-skating rink in a portion of Tilles Park		(not codified)
68859	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 5101-33 Labadie Ave.		(not codified)
68860	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3209 Potomac St.		(not codified)
68861	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3451 California Ave.		(not codified)
68862	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 3300-04 Lemp Ave.		(not codified)
68863	2-22-2011	Community Unit Plan - Authorizing an amendment to the community unit plan for Washington University Medical Center		(not codified)
68864	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 6438 Lloyd Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68865	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 2221 S. Jefferson Ave.		(not codified)
68866	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 1342 Montclair Ave.		(not codified)
68867	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 926-56 Hamilton Blvd.		(not codified)
68868	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for N. Sarah/W. Belle/CD Banks/Finney Redevelopment Area		(not codified)
68869	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4451 Gibson Ave.		(not codified)
68870	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4380 Chouteau Ave.		(not codified)
68871	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 4301-05 S. Kingshighway Blvd. and 4902 Winona Ave.		(not codified)
68872	2-22-2011	Port Authority - Authorizing and directing the Mayor and Comptroller to enter into a lease agreement between the City and Kiesel Company for mooring privileges on the Unimproved Wharf for a period of 10 years with 3 and 5 year mutual options		(not codified)
68873	2-22-2011	Redevelopment Plan - Modifying the terms of the 5 year real estate tax abatement for the 1824 Chouteau Ave. Redevelopment by Ordinance 67620		(not codified)
68874	2-22-2011	Tax Increment Revenue Notes - Amending Ordinance 67060 and amending Ordinance 68180 pertaining to the issuance and delivery of tax increment notes for the Grand Center Redevelopment Project and authorizing of an Amended and Restated Trust Indenture and Note Purchase Agreement		(not codified)
68875	2-22-2011	Redevelopment Plan -Approving a Blighting Study and Redevelopment Plan for 60 Clayton Ave.		(not codified)
68876	2-22-2011	Redevelopment Agreement - Authorizing the execution of a project agreement between the City and Northside Regeneration, LLC pursuant to the TIF Act		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68877	2-22-2011	Redevelopment Plan/Area/Project - Designating North Carrie Broadway Carrie Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Area; establishing the North Broadway Carrie Special Allocation Fund		(not codified)
68878	2-22-2011	Redevelopment Agreement - Authoring the execution of a Redevelopment Agreement between the City and the Broadway Carrie TIF, Inc.		(not codified)
68879	4-21-2011	Zoning - District Map change from "C" District to "F" District in CB 3742 (4061 Finney)		(not codified)
68880	4-21-2011	Zoning -District Map change from "C" District to "F" District in CB 4564 (4060-62 Finney and 4059-63 C D Banks)		(not codified)
68881	4-21-2011	Traffic—Establishing a stop site at the intersection of Lena Ave. and Acme Ave.		(not codified)
68882	6-28-2011	Annual Operating Budget Plan for Fiscal Year 2011-2012—Appropriating payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
68883	5-25-2011	Bonds—Authorizing the Directing the St. Louis Municipal Finance Corporation to issue and sell the Corporation's 1520 Market St. Leasehold Revenue Bonds in the aggregate amount not to exceed $9.25 million for construction and expansions costs for 1520 Market Street		(not codified)
68884	5-25-2011	Tax Revenue Notes—Provides for the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its General Revenue Fund through issuance of Tax Revenue Anticipation Notes and the acquiring of credit enhancement to lower the cost of such borrowing, if necessary		(not codified)
68885	5-25-2011	Excise - Prohibiting the issuance of package liquor license for any non-licensed premises within the boundaries of the 5th Ward Liquor Control District		(not codified)
68886	5-25-2011	Grant—Authorizing and directing the Fire Chief to enter into and execute a Grant Agreement with FEMA		(not codified)
68887	5-25-2011	Easement—Authorizing and directing the Mayor and Comptroller to execute a permanent irrevocable easement to Laclede Gas Company across a 10 foot strip of ground in CB 2034		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68888	5-25-2011	Airport—Airport Commission ratifying and adopting the actions of the Mayor and the Comptroller of the City in accepting and executing a Grant Agreement through FAA of the US Department of Transportation for Project Number 3-29-0085-128-2011 for $423,000		(not codified)
68889	5-25-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the First Amendment to Lambert-St. Louis International Airport Development Agreement dated March 1, 2010		(not codified)
68890	5-25-2011	Airport—Authorizing a 7th Supplemental Appropriation in the total amount of $141,000 from the Airport Development Fund		(not codified)
68891	5-25-2011	Airport—Authorizing a supplemental appropriation to the annual budget and set apart in the total amount of $2,323,000 from the Airport Development Fund		(not codified)
68892	5-25-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute an Airport Use and Lease Agreement for Lambert-St. Louis International Airport		(not codified)
68893	6- 8-2011	Traffic—Establishing a four way stop intersection for all eastbound and westbound traffic traveling on Dover Street at Coronado Avenue		(not codified)
68894	6- 8-2011	Port Authority—Authorizing and directing the Mayor and the Comptroller to execute and deliver the Lease Termination Agreement between the City, Port Authority and President Riverboat Casino-Missouri, Inc.		(not codified)
68895	6- 8-2011	Streets—Directing the Director of Streets to temporarily close, barricade or otherwise impede the flow of traffic at Annetta Ave. at a point approximately 320 feet south of the curb line of Halls Ferry Road		(not codified)
68896	6- 8-2011	Zoning—District Map change from "A" District to "H" District in CB 3895 (4641-49 Maryland)		(not codified)
68897	6- 8-2011	Grant—Authorizing and directing the Mayor to submit all necessary applications and to enter into agreements with the Missouri Foundation for Health for the "Smoke Free St. Louis Kids" to expend any funds received by said grants		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68898	6- 8-2011	Parking Commission—Making appropriation for payment of the operating expenses, capital equipment and improvement expenses, including lease purchase agreements involving Parking Division assets and debt service expenses of the Parking Division		(not codified)
68899	6- 8-2011	Public Works and Improvement Project—Establishing a public works and improvement project within the vicinity of River Des Peres Boulevard and Chippewa Street		(not codified)
68900	6- 8-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute on behalf the City the Lambert-St. Louis International Airport Cargo City Lease Agreement AL-456 between the City and American Airlines		(not codified)
68901	6- 8-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter and execute the Lambert-St. Louis International Airport Cargo City Lease Agreement AL-455 between the City and Brendan Airways		(not codified)
68902	6- 8-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter and execute on behalf the Lambert-St. Louis International Airport Airline Service Building Lease Agreement AL-462 between the City and Delta Airlines		(not codified)
68903	6- 8-2011	Airport—Transfer of $6 million of excess funds from Airport Development Funds into the Airport Contingency Fund and further authorizing transfers of $6 million from the Airport Contingency Fund to the Airport Revenue Fund for the purposes of making funds available for the estimated costs of the Air Service Incentive Program		(not codified)
68904	6- 8-2011	Airport—Adoption of the Amended and Restated Air Service Incentive Program for Fiscal Years 2010 through 2014		(not codified)
68905	6-16-2011	Redevelopment Agreement—Execution of an amendment to Redevelopment Agreement between the City and City Hospital Powerhouse TIF, Inc		(not codified)
68906	6-16-2011	Redevelopment Plan—Modifying the terms of the 10 year real estate tax abatement for 1208 Hebert Street in 1204-08, 1205 and 1219 Hebert Street Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68907	6-16-2011	Vacation—Vacating a portion of Second Street, a portion of CB 249, a portion of Eighth Street, a portion of Howard, a portion of Tenth Street, a portion of Howard, and a portion of Eleventh from Mullanphy to Cass		(not codified)
68908	6-16-2011	Vacation—Vacating a portion of CB 3459 as bounded by Pope, Prescott, Clarence and Ouida; a 20 foot wide east/west alley CB 3426 as bounded by Carrie, Prescott, Pope and Ouida; a 20 foot wide east/west alley in CB 3463 as bounded by Carrier, Bulwer, Pope and Prescott; vacating Ouida from Carrie to Pope; vacating Pope from Ouida to Bulwer; and vacating Prescott from Carrie to Clarence		(not codified)
68909	6-16-2011	Port Authority—Authorizing and Directing the Mayor and Comptroller to enter into an Option to Lease Agreement between the City and Grace Hill Settlement House for the lease of certain land on the Unimproved Wharf with said option to lease to be exercised by Grace Hill Settlement House within 10 years following the commencement date of the Option to Lease Agreement		(not codified)
68910	6-16-2011	Redevelopment Plan—Amending Ordinance 67436 modifying the terms of the 10 year real estate tax abatement for 3100-42 Franklin Ave./ 3121-37 Delmar Blvd. Redevelopment Area		(not codified)
68911	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2616 California Ave.		(not codified)
68912	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2619 S. Compton Ave.		(not codified)
68913	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6408 Arthur Ave.		(not codified)
68914	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 7059 Mardel Ave.		(not codified)
68915	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2320-48 Dodier St.		(not codified)
68916	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4168 W. Pine Blvd.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68917	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for N. Grand/W. Florissant/Grove/Carter		(not codified)
68918	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4312 Washington Blvd.		(not codified)
68919	6-23-2011	Redevelopment Plan - Amending Ordinance 67743 by modifying the terms of the five year real estate tax abatement for 3805 Wyoming Street		(not codified)
68920	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3218-20 Cherokee Street		(not codified)
68921	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2801-03 Missouri Ave.		(not codified)
68922	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4325 Ashland Ave., 2418 Euclid Ave., & 4000 Greer Ave.		(not codified)
68923	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3434 Humphrey St.		(not codified)
68924	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4059 Castleman Ave.		(not codified)
68925	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2118 Forest Ave.		(not codified)
68926	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2924-26 Cherokee St.		(not codified)
68927	6-23-2011	Redevelopment Plan—Amending Ordinance 67015, modifying the terms of the 10 year real estate tax abatement for 2632 January Ave. in the N. Magnolia Ave./Pearl St./S. Magnolia Ave./January Ave. Redevelopment Area		(not codified)
68928	6-23-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1100 Farrar St.		(not codified)
68929	6-23-2011	Streets—Designating the 6500 block of Scanlan Ave. as "Francis R. Slay Way"		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68930	6-28-2011	Authorizing and directing the Mayor to make an application and execute any contracts, promissory notes or other loan documents to HUD to refinance the City's existing Section 108 Loan pertaining to the Downtown Convention Center Hotel with a new loan		(not codified)
68931	6-28-2011	Authorizing and directing the Mayor to make an application and execute any contracts, promissory notes or other loan documents to HUD to refinance the City's existing Section 108 Loan pertaining to the Darst-Webbe (Near Southside) Hope VI Revitalization Plan with a new loan		(not codified)
68932	7- 5-2011	Zoning—District Map change from "F" District to "D" District in CB 631 (2115-23 N. 13th Street & 1303-12 Clinton Streets) and CB 640 (1221 Clinton Street) and from "D" District and "F" District to "D" District only in CB 632 (1301-19 Clinton Street)		(not codified)
68933	7- 5-2011	Zoning—District Map change from "K" District to "J" District in CB 3458 (635 E. Clarence) and CB 3463 (652, 650, 644, 642, 640, 634, 626, 624, 616-18, 614, 612, & 600-06 Carrie Avenue, 601, 603, 607, 609, 613, 617-19, 621, 623, 629-31, 633-35, 647, & 645 Pope Ave., and 6100, 6106, 6108, & 6110 Prescott Ave.) in CB. 3458 and 3463		(not codified)
68934	7- 5-2011	Adopting Section 105.483(11) RSMo., reaffirming the provisions in Ordinance 62391, 66691, and 67617, 68409 establishing a policy for disclosure of potential conflicts of interest and substantial interests for municipal officials	1—5	4.07.010—4.07.050
68935	7- 5-2011	Community Improvement District—Extending and renewing the establishment the Downtown St. Louis Community Improvement District, Inc.		(not codified)
68936	7- 5-2011	Streets—Temporarily close, barricade or otherwise impede the flow of traffic on Brantner Place at the east curb line of Francis Street		(not codified)
68937	7- 5-2011	Streets—Amending Ordinance 65233 regarding the designation of honorary street names and requiring payment for the cost and installation of honorary signs and requiring 60% of the registered voters to indicate by petition the honorary renaming	1 Added	20.12.050
68938	7- 5-2011	Streets—Designating the 4300 block of St. Ferdinand Ave. as "Joseph Clark, Sr. Way"		(not codified)
68939	7- 5-2011	Streets—Designating the 3000-3100 block of Whittier Street as "Chuck Berry Way"		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68940	7- 5-2011	Streets—Designating the 2900 block of Marcus Ave. as "Rev. William G. Gillespie Way"		(not codified)
68941	7- 5-2011	Lease—Authorizing Amendment 3 to the Amended and Restated Lease between the City and W.A.T. Dignity Corporation authorized by Ordinance 64565 and 64913 for property and improvements located at Whittier and Kennerly Streets		(not codified)
68942	7- 5-2011	Bonds—Authorizing and directing the St. Louis Municipal Finance Corporation to issue and sell one or more series of the Corporation's City Justice Center Leasehold Revenue Refunding Bonds in an aggregate amount not to exceed $70 million; and authorizing and directing the Corporation and City to execute and deliver the 6th Supplemental Indenture Trust, the 4th Supplemental Base Lease, the 5th Supplemental Lease Agreement, the Credit Agreement, the Escrow Agreement, if any, the Tax Compliance Agreement, the Bond Agreement and the Official Statement		(not codified)
68943	7-12-2011	Excise—Repealing Ordinances 68840 and 68595 and enacting a new ordinance confirming the prohibition of the issuance of any package liquor licenses for any premises within the boundaries of the Twenty-Fourth Ward Liquor Control District		(not codified)
68944	7-12-2011	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on Loughborough Ave. at Trainor Ct. causing it to be a three way stop intersection		(not codified)
68945	7-12-2011	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute on behalf of the City the Lambert-St. Louis International Airport Cargo City Lease Agreement AL-453 between the City and Southwest Airlines Co.		(not codified)
68946	7-12-2011	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute on behalf of the City, the License Agreement for K-Lot Facility between the City and FAA		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68947	7-12-2011	Bonds—Directing and authorizing the issuance and sale of one or more series of the City Water Revenue Refunding Bonds, Series 2011 Bonds in an aggregate amount not to exceed $16 million; authorizing and directing the Mayor and the Comptroller to execute and deliver the Trust Indenture, Tax Compliance Agreement, Bond Purchase Agreement, Offering Document, Escrow Agreement, Continuing Disclosure Agreement		(not codified)
68948	7-12-2011	Civil Service Pay Plan—Amending Section 2(c), Section 2(e)(3), Section 7(d) of Ordinance 68711 of the Fire Department Pay Schedule and Plan	1, 2	4.10.020
			3	4.10.070
			4	4.10.160
68949	7-12-2011	Authorizing a supplemental appropriation—amending Ordinance 68643 referred to as the St. Louis Annual Operating Plan for Fiscal Year 2010-2011; appropriating and setting apart into a new special fund 1116 Downtown Vending District Parks from payments to be received from street vendors in the Downtown Vending District in the sum of $25,300	1 Added	5.85.010
68950	7-12-2011	Community Improvement District—Approving the petition of certain real property to establish the Grand Community District and authorizing the execution of a Transportation Project Agreement between the City and the 212 S. Grand Transportation Development District		(not codified)
68951	7-12-2011	Community Improvement District—Approving the petition of certain real property to establish the City Hospital Powerhouse Community Improvement District; authorizing the execution of a Transportation Project Agreement between the City and City Hospital Powerhouse Transportation Development District		(not codified)
68952	7-12-2011	Community Improvement District—Approving the petition of certain real property to establish The Cheshire Annex Community Improvement District, authorizing the execution of a Transportation Project Agreement Between the City and The Cheshire Transportation Development District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68953	7-20-2011	Bonds—Approving the modification of documents entered into in connection with the police capital improvement sales tax leasehold revenue bonds, series 2007 and execution of the First Supplemental Lease Purchase Agreement and Approving the First Supplemental Deed of Trust and Security Agreement in Connection with Such Modification		(not codified)
68954	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1539 Vail Place		(not codified)
68955	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3623 Steins St.		(not codified)
68956	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 7416-18 Virginia		(not codified)
68957	7-20-2011	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of not to exceed $3.5 million plus issuance cost tax increment revenue notes (North Broadway Carrie Redevelopment Project)		(not codified)
68958	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4313 and 4453 Gibson Avenue		(not codified)
68959	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1538, 1540, 1562 & 1564 Fairmount Ave.		(not codified)
68960	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3887 Wyoming St.		(not codified)
68961	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2025 Hereford St.		(not codified)
68962	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5967-69 Dr. Martin Luther King Dr.		(not codified)
68963	7-20-2011	Port Authority—Authorizing and directing the Mayor and Comptroller to enter into a lease agreement between the City and ACL Transportation Services LLC		(not codified)
68964	7-20-2011	Port Authority—Authorizing and directing the Mayor and Comptroller to enter into a lease agreement between the City and Fred Weber, Inc.,		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68965	7-20-2011	Redevelopment Agreement—Authorizing the execution of an Amendment to Redevelopment between the City and St. Louis Leased Housing Associates III, L.P.		(not codified)
68966	7-20-2011	Community Improvement District—Approving the Petition to establish the North Broadway Carrie Community Improvement District		(not codified)
68967	7-20-2011	Redevelopment Agreement—Authorizing the execution of an Amendment to Redevelopment Agreement between the City and Hadley Dean Building TIF, Inc.		(not codified)
68968	7-20-2011	Redevelopment Agreement—Amending Ordinance 68194 and authorizing the execution of an amendment to a redevelopment agreement between the City and Council Tower Senior Apartments, LP		(not codified)
68969	7-20-2011	Redevelopment Agreement—Authorizing the execution of an amendment to redevelopment agreement between the City and Glenwood Griffin, Inc.		(not codified)
68970	7-20-2011	Transportation Development Project Agreement—Authorizing the execution of a Transportation Project Agreement with St. Louis Food Hub Transportation Development District		(not codified)
68971	7-20-2011	Redevelopment Plan/Area/Project—Amending Ordinance 67681, designating the St. Louis Food Hub TIF as a portion of Redevelopment Area Project Area 3, authorizing the execution of the Redevelopment Agreement between the City and St. Louis Food Hub TIF, Inc., and authorizing other related actions in connection with the redevelopment of certain property within the redevelopment project area 3		(not codified)
68972	7-20-2011	Tax Increment Revenue Notes—Issuance and delivery of Tax Increment Revenue Notes for City Hospital RPA 3 Redevelopment Project not to exceed $7.2 million plus issuance costs		(not codified)
68973	7-20-2011	Redevelopment Agreement—Authorizing the execution of an amendment to the Redevelopment Agreement between the City and Near Southside Improvement Corporation		(not codified)
68974	7-20-2011	Tax Increment Revenue Notes—Issuance and delivery of Tax Increment Revenue Notes for Lafayette Square Historic District Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68975	7-20-2011	Redevelopment Agreement—Authorizing the execution of an amendment to the Redevelopment Agreement between the City and Loop TIF, Inc.		(not codified)
68976	7-20-2011	Tax Increment Revenue Notes—Amending and restating Ordinance No. 67069, authorizing and directing the issuance and delivery of Tax Increment Revenue Notes not to exceed $6 million for Delmar East Loop Redevelopment Project		(not codified)
68977	7-20-2011	Redevelopment Plan/Area/Project/Agreement—Affirming the adoption of a redevelopment plan, area and project and authorizing the execution of redevelopment agreements between the City and Carondelet TIF		(not codified)
68978	7-20-2011	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of tax increment revenue notes for the South Carondelet District #3 Redevelopment Project		(not codified)
68979	7-20-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for Cass Ave./N. 1st Street/Mullanphy St./N. 2nd St.		(not codified)
68980	7-20-2011	Industrial Development Authority—Amending Ordinances 65118, 66006, 66007, 66008, 66010, 66196, 66223, 66241, 66243, 66414, 66435, 66437, 66495, 66578, 66580, 66581, 66585, 66586, 66587, 66666, 66673, 66674, 66676, 66755, 66829, 66835, 66838, 66841, 66844, 66973, 67021, 67053, 67055, 67057, 67064, 67067, 67069, 67071, 67305, 67314, 67360, 67418, 67420, 67458, 67460, 67463, 67465, 67469, 67471, 67473, 67480, 67490, 67493, 67510, 67664, 67672, 67678, 67702, 67704, 67707, 67712, 67817, 67820, 67910, 67936, 67966, 68005, 68008, 68081, 68085, 68088, 68091, 68094, 68099, 68106, 68189, 68193, 68195, 68250, 68253, 68258, 68262, 68274, 68276, 68307, 68395, 68431, 68442, 68555, 68627, 68628, 68633, and 68782 to include the Industrial Development Authority in the definitions of approved investor, original purchaser and qualified institutional buyer		(not codified)
68981	7-26-2011	Ward Boundaries—Repealing Ordinance 65377, codified as Chapter 2.12, and establishing new ward boundaries	1 Rpld	2.12.010
			2 Added	2.12.010
68982	7-26-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 212 Grand Blvd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
68983	10-10-2011	Pursuant to Ordinance 63168 creating the "City Public Transit Sales Tax Trust Fund" directing the Treasurer of the City of St. Louis to deposit funds received pursuant to said sales tax into the "City Public Transit Sales Tax Trust Fund—Account ONE" appropriating $9,975,000 from the said sales tax for period herein stated to the Bi-State Development Agency; providing for payments of such funds from July 1, 2011 through June 30, 2012		(not codified)
68984	10-10-2011	Pursuant to Ordinance 64111 creating the "City Public Transit Sales Tax Trust Fund" directing the Treasurer to deposit funds received pursuant to said sales tax into the "City Public Transit Sales Tax Trust Fund - Account TWO" appropriating $9,975,000 from the said sales tax for the period herein stated to the Bi-State Development Agency; providing for payment of funds during period from 7-1-11 to 6-30-2012		(not codified)
68985	10-10-2011	Appropriating the sum of $19,227.000 out of the "Transportation Trust Fund" to the Bi-State Development Agency for transportation purposes		(not codified)
68986	10-20-2011	Vacation—Vacating a portion of CB 1013 bounded by Washington/Rev. T.E. Huntley/Locust and Garrison		(not codified)
68987	10-20-2011	Vacation—Vacating a portion of CB 1043 beginning at Josephine Baker and extending 145.16 feet eastwardly to a point and bounded by Washington, Leonard, Locust and Josephine Baker		(not codified)
68988	10-20-2011	Vacation—Vacating a portion of Hickory St. from Carr Lane to Ranken Ave. and Ranken Ave. from south right-of-way line of Hickory St. northwardly 125 feet		(not codified)
68989	10-20-2011	Vacation—Vacating a portion of Catalan Street/Railroad Street/Marceau Street/East Railroad Street to Davis Street/Hurck Street from East Railroad Street to West Railroad Street/Davis to Polk		(not codified)
68990	10-20-2011	Street Vendors—Amending Ordinance 65061 by deleting paragraph G of Section Four; thereby prohibiting street vendors in the area previously known as the 14th Ward Vending District	1	8.108A.030
68991	10-20-2011	Dog Training—Regulating dog training activities in public parks, prohibiting attack training and requiring a permit for the activity	1—5 Added	10.04.287

Ordinance Number	Date	Description	Section	Section this Code
68992	10-20-2011	Lease—Authorizing the First Amendment of the Operating Lease Agreement authorized by Ordinance 68601 of the West End Community Center between the City and Demetrious Johnson Charitable Foundation, Inc. by deleting Section 14 pertaining to utilities and adopting a new Section 14		(not codified)
68993	10-20-2011	Grant—Authorizing and directing the Mayor to submit applications, enter into agreements, and expend any funds receiving from grants from the State of Missouri Department of Health and Senior Services Grant for "Child & Adult Care Food-I Am Moving, I Am Learning" Program		(not codified)
68994	10-20-2011	Authorizing and directing the Mayor and Comptroller to execute a quit claim deed to Grace Hill Health Centers, Inc. for the consideration of $140,000 for property at 1717 Biddle Street		(not codified)
68995	10-20-2011	Authorizing and directing the Mayor and Comptroller to execute a quit claim deed to Grace Hill Health Centers, Inc. for the consideration of $190,000 for property at 2220 Lemp Ave.		(not codified)
68996	10-20-2011	Division of St. Louis Aging—Repealing Section One, Two, Three, Four, Five, Six, and Seven of Ordinance 56015 and enacting in lieu a new ordinance on the same subject matter	1 Rpld	3.36.470—3.36.500
			2—6 Added	3.36.470—3.36.510
68997	10-20-2011	Excise—Repealing Ordinance 68113 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Twenty-Seventh Ward Liquor Control District for a period of 3 years		(not codified)
68998	10-20-2011	Traffic—Establishing a stop site for all northbound traffic traveling on Euclid Avenue at Wabada Place, establishing a stop site for all southbound traffic traveling on Euclid Avenue at Hammett Place		(not codified)
68999	10-20-2011	Excise—Repealing Ordinance 68403 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Nineteenth Ward Liquor Control District for a period of 3 years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69000	10-20-2011	Excise—Repealing Ordinance 68748 pertaining to the issuance of any package or drink liquor licenses for premises within the boundaries of the Third Ward Liquor Control District and providing for supplementary exemptions and the renewal of an existing license and the establishment of an Entertainment District		(not codified)
69001	10-20-2011	Excise—Repealing Ordinance 68841 and enacting a new ordinance confirming the prohibition of the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Twentieth Ward Liquor Control District for a period of 3 years		(not codified)
69002	10-20-2011	Excise—Repealing Ordinance 68809 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Tenth Ward Liquor Control District		(not codified)
69003	10-20-2011	Excise—Repealing Ordinance 68885 and enacting a new ordinance prohibiting the issuance of any package liquor license for any non-licensed premises within the boundaries of the 5th Ward Liquor Control District for a 3 year period		(not codified)
69004	10-20-2011	Excise—Repealing Ordinance 68131 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Fourth Ward Liquor Control District for a period of 3 years		(not codified)
69005	10-26-2011	Intergovernmental Agreement—Authorizing and directing the Mayor to enter into and execute an Intergovernmental Agreement with Amendment with Madison County, Ill., Monroe County, Ill., St. Clair County, Ill., St. Louis Metropolitan Police Department, Franklin County, Jefferson County 911 Dispatch Board, St. Charles County and St. Louis County regarding Regional interoperability in connecting the P-25-700/800 MHz radio systems through a digital radio microwave system linking the City and the counties to the two regional network controllers and the Starcom-21 Network controller		(not codified)
69006	11- 4-2011	Excise—Prohibiting the issuance of any package liquor license for any non-licensed premises within the boundaries of the Eighteenth Ward Liquor Control District for a period of 3 years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69007	11- 4-2011	Zoning—District Map change from "D" District to "F" District in CB 4971 (1618 Tower Grove Ave.)		(not codified)
69008	11- 4-2011	Zoning—District Map change from "C" District to "F" District in CB 5445 (4260 McRee Ave.)		(not codified)
69009	11- 4-2011	Excise—Prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Fourteenth Ward Liquor Control District for a period of 3 years		(not codified)
69010	11- 4-2011	Excise—Amending Section Four of Ordinance 68536 setting forth an area, which shall not be within the convention trade area of the City	1	14.03.230
69011	11- 4-2011	Grant—Authorizing the Mayor to submit a 2012 Annual Plan to HUD to apply for grant funding under the CDBG, HOME, ESG, HOPWA, Entitlement Programs and authorizing and directing the Mayor and Comptroller to enter into an execute agreements with HUD and appropriating the sums for the various programs for the 2012 Year		(not codified)
69012	11- 7-2011	Airport—Authorizing a Sixth Supplemental Appropriation in the amount of $3 million from the Airport's FAA Land Sale Account into the Noise Mitigation Program		(not codified)
69013	11- 9-2011	Scrap Metal Dealers—Repealing Ordinance 55783 codified as 8.82.140 through 8.82.260 and requiring an electronic database requirements, sale and purchase of certain scrap metal, and rules and regulations for persons doing business as scrap metal dealers	1	8.82.140
			2 Rpld	8.82.220
			3 Rpld	15.159.010—15.159.050
			4—13Added	15.159.010—15.59.100
69014	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4500-78 N. Broadway		(not codified)
69015	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2621 S. Compton Ave.		(not codified)
69016	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1116 Olive St.		(not codified)
69017	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3452 Iowa		(not codified)
69018	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4126 Botanical Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69019	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3851-53 N. Utah		(not codified)
69020	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5716 Saloma Ave.		(not codified)
69021	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 500 N. Broadway		(not codified)
69022	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for Bevo Mill Scattered Sites III		(not codified)
69023	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3900 Ray Ave.		(not codified)
69024	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2900-38 & 3000-3036 Washington Ave., 509 Rev. T.E. Huntley, & 2927-35 Locust Blvd.		(not codified)
69025	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1219-1319 Clinton/2101-09 & 2113-21 N. 13th Street		(not codified)
69026	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3665 Shenandoah Ave.		(not codified)
69027	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2621-23 McNair Ave.		(not codified)
69028	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5473-75 Brown Ave.		(not codified)
69029	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5227-39 Northrup Ave.		(not codified)
69030	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2215-29 Washington Ave.		(not codified)
69031	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for N. 25th/Mullanphy/N. Jefferson		(not codified)
69032	11- 9-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4207 Arco Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69033	11- 9-2011	Development Agreement—Authorizing the City to enter into a Development Agreement with Ralcorp Holdings, Inc., and authorizing the City to issue Taxable Industrial Development Revenue Bonds in a principal amount not to exceed $20 million to pay for certain equipment costs for an industrial development project		(not codified)
69034	11- 9-2011	Enhanced Enterprise Zone—Extending the maximum term of real property tax abatement within the enhanced enterprise zone to 15 years and authorizing and directing the taking other actions as necessary to comply with the intent hereof		(not codified)
69035	11- 9-2011	Development Agreement—Establishing an earnings and payroll tax reimbursement account in support of the development at 501 North Broadway		(not codified)
69036	11-18-2011	Airport—Transfer of $13,727,769 of excess funds that the City intends to transfer from the Debt Service Stabilization Fund to the Airport Revenue Fund to be used to make funds available to mitigate rates on an annual basis during the term of the Airport Use and Lease Agreement		(not codified)
69037	11-18-2011	Zoning—Repealing portions of Section Twenty-Four of Ordinance 59979 pertaining to requirements of notice, codified as 26.92.010, 26.92.020, 26.92.030, 26.92.040 and enacting new sections on the same subject matters	2—5	26.92.010—26.92.040
69038	11-18-2011	Airport—Adopting the actions of the Mayor and Comptroller in accepting and executing a grant agreement acting through the FAA for a Grant Agreement for Project Number 3-29-0085-130-2011		(not codified)
69039	11-18-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the City the Fuel System Lease and Use Agreement with a twenty-year term between the City and STL Fuel Company LLC		(not codified)
69040	11-18-2011	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the Luggage Cart Rental Concession Agreement between the City and Flight Services & Systems, Inc., d/b/a EZCART		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69041	11-28-2011	Port Authority—Authorizing and directing the Mayor and Comptroller to enter into a Second Memorandum of Agreement on behalf of the City and Bi-State authorizing the issuance of permits, which provide the Agency mooring privileges on the improved wharf with mutual potions for three one year extensions		(not codified)
69042	12- 6-2011	Parks—Providing for the Execution and delivery of a 2011 Supplemental Maintenance Cooperation Agreement between the City and Forest Park Forever		(not codified)
69043	12-12-2011	Animals—Repealing Ordinance 67416 authorizing a design build contract for an animal shelter and Section Two of Ordinance 65435 which sets forth the Excess Payment Disposition of the Animal Protection Restoration Fund and directing said funds being collected by the Collector of Revenue to be distributed pursuant to the provisions of Ordinance 65435 and authorizing the establishment of a Pet Spay, Neuter and Microchip Assistance Fund to offer financial assistance to qualified City residents"	4—7 Added	5.95.010—5.95.040
69044	12-12-2011	Grant—Authorizing and directing the Mayor on behalf of the City to apply for a grant and directing the Mayor and Comptroller to enter into and execute an Agreement with the MoDED for a grant to assist with the cost of repairs to homes damaged by tornado and storm damage and hereafter referred to as the "Lewis Place Tornado Damage Relief Project" and appropriating the sum of $500,000		(not codified)
69045	12-12-2011	Grant—Authorizing the Mayor to apply for funding under HUD Office of Healthy Homes and Lead Hazard Control being offered pursuant to a Federal Fiscal Year 2011 Notice of Funding Availability for the Lead Hazard Reduction Demonstration Grant Program		(not codified)
69046	12-12-2011	Zoning—Map District change from "J" District and "K" District to the "J" District in CB 936 (2219-33 Delmar)		(not codified)
69047	12-12-2011	Grant—Authorizing and directing the Mayor to submit all necessary application to enter into agreements with the Missouri Foundation for Health for the "St. Louis Healthy Corner Store Project" for the "Community Health Assessment/ Improvement Plan"		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69048	12-19-2011	Tax Increment Revenue Notes—Amending Ordinance 68957 and authorizing and directing the issuance and delivery of tax increment revenue notes not to exceed $3.5 million plus issuance costs for North Broadway Carrie Redevelopment Project by adding Love's Travel Stop & Country Stores and providing for the creation of a CID and TDD Revenue Accounts in the Special Allocation Fund		(not codified)
69049	12-19-2011	Bonds—Request for Proposal to secure bond counsel, financial advisors, underwriters, underwriters' counsel and any other professional services necessary to prepare documents to issue Bonds in the principle amount of $34 million to allow for planting of trees and other landscape materials and essential capital improvements to City Parks		(not codified)
69050	12-21-2011	Redevelopment Agreement - Authorizing the execution of an amendment to redevelopment agreement by and among the City, Bottle District Investors, LLC and Northside Regeneration LLC; assigning certain redeveloper rights, duties and obligations to Northside Regeneration LLC and authorizing the sale, transfer or disposal of certain real property from Bottle District Investors, LLC to Northside Regeneration, LLC and to implement redevelopment projects in furtherance of an existing redevelopment plan		(not codified)
69051	12-22-2011	Redevelopment Plan/Area/Project—Dissolving the Special Allocation Fund for the Scullin Redevelopment Project Area, terminating the designation of a portion of the City as a redevelopment area and authorizing certain actions		(not codified)
69052	12-22-2011	Redevelopment Plan/Area/Project—Dissolving the Special Allocation Fund for the Station G Redevelopment Area and Terminating the designation of certain respective portions of the City and authorizing certain actions		(not codified)
69053	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 210 N. Tucker Blvd.		(not codified)
69054	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1613-15 Carroll Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69055	12-22-2011	Redevelopment Plan/Area/Project—Dissolving Special Allocation Funds for the 1400 Washington Redevelopment Area, 3150 South Grand Area, 5819 Delmar Redevelopment Area, Chouteau Newstead Redevelopment Area, Ice House Redevelopment Area and terminating the designation of certain respective portions relating to each redevelopment area and authorizing certain actions relating hereto		(not codified)
69056	12-22-2011	Clean Energy Development Board—Establishing the Clean Energy Development Board, authorizing the Mayor to appoint the members of the Board, authorizing the Board to provide for property assessed clean energy financing for energy efficiency improvements to property	1—6 Added	3.120.010—3.120.060
69057	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 5439 Reber Pl.		(not codified)
69058	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 6925 Oleatha Ave.		(not codified)
69059	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2710 Russell Blvd. Redevelopment		(not codified)
69060	12-22-2011	Redevelopment Agreement—Affirming the Adoption of a Redevelopment Plan, Area and Project and authorizing the execution of a redevelopment agreement between the City and MX TIF, Inc.		(not codified)
69061	12-22-2011	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of not to exceed $8,050,000 plus issuance costs for the 600 Washington RPA 1 Redevelopment Project—St. Louis Centre Component		(not codified)
69062	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3322-24 Cherokee St.		(not codified)
69063	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3321 Cherokee St.		(not codified)
69064	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2845 Victor St.		(not codified)
69065	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2200-16 Washington Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69066	12-22-2011	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3339 Missouri Ave.		(not codified)
69067	12-22-2011	Tax Increment Financing—Determining that certain Tax Increment Financing Plans listed in the Exhibit are making satisfactory progress under the proposed time schedule for completion of projects therein		(not codified)
69068	12-22-2011	Redevelopment Agreement—Repealing Ordinance 68182; affirming adoption of a redevelopment plan, area, and project and authorizing the execution of a Redevelopment Agreement between the City and Lancaster Ventures Ltd.; Designating Lancaster Ventures Ltd. as Developer of the Redevelopment Area		(not codified)
69069	12-22-2011	Tax Increment Revenue Notes—Repealing Ordinance 68188 and authorizing and directing the issuance and delivery of not to exceed $4,227,000 plus issuance costs for the Chemical Building Redevelopment Project		(not codified)
69070	12-22-2011	Redevelopment Agreement—Affirming adoption of Redevelopment Plan, Area and Project and authorizing the execution of a Redevelopment Agreement between the City and C9 TIF and designating C9 TIF as developer of certain property within the Redevelopment Area		(not codified)
69071	12-22-2011	Tax Increment Revenue Notes—Amending Ordinance Nos. 67480 and 68324 Relating to the Issuance and Delivery of Tax Increment Revenue in the amount of $4.6 million plus issuance costs for Building 9 Component—Ballpark Lofts Redevelopment Project		(not codified)
69072	12-22-2011	Redevelopment Plan/Area/Project—Dissolving the Special Allocation Fund for the I-70 and Goodfellow Area, 4800-50 Goodfellow Blvd., and terminating the designation of that certain portion area as a redevelopment area		(not codified)
69073	1-20-2012	Agreement with the Missouri Highways and Transportation Commission to remove and replace the Jefferson Ave. Bridge over Interstate I-64 and associated highway ramps without cost to the City		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69074	1-20-2012	Grant—Authorizing and directing the Director of Public Safety on behalf of the Mayor and City to enter into and execute a Grant Agreement with the U.S. Department of Justice, Bureau of Justice Assistance to fund the 2011 Justice Assistance Grant Program		(not codified)
69075	1-20-2012	Public Works and Improvement Project—Establishing a public works and improvement project for the design and construction of the Traffic Management Enhancement Project		(not codified)
69076	1-24-2012	Vacation—Vacating Motard Ave. from Hickory to Rutger and a portion of CB 2181-S		(not codified)
69077	1-24-2012	Vacation—Vacating Children's Place from Kingshighway to a point 293.625 ft in the City		(not codified)
69078	1-24-2012	Streets—Authorizing the Director of Streets to temporarily close, barricade or otherwise impede the flow of traffic in the northernmost east/west alley by Penrose Park and Penrose Street at Euclid Ave and the northernmost east/west alley bounded by Penrose Park and Penrose Street at Aubert Avenue		(not codified)
69079	1-31-2012	Streets—Designating the 1200 block of Clarendon Ave. as "Rev. John Watson Sr. Ave."		(not codified)
69080	2-10-2012	Transportation Development Project—Authorizing the execution of a Transportation Development Project Agreement between the City and 2118 Chouteau Transportation Development District		(not codified)
69081	2-10-2012	Zoning—District Map change from "J" District to "H" District in CB 4002 (5800 Highlands Plaza Drive and 1110 E. Highlands Plaza Drive)		(not codified)
69082	2-10-2012	Zoning—District Map change from "B" District to "C" District in CB 4550 (5501-51 Enright and 5534 Clemens)		(not codified)
69083	2-13-2012	Vacation—Vacating 20 foot wide north/south alley in CB 1450E as bounded by Halliday, Compton, Pestalozzi and Virginia		(not codified)
69084	2-13-2012	Zoning—Repealing and amending Section 26.80.010(C)(2), 26.80.050(D), 26.80.060(E) and 26.80.070(B) and (G), and 26.84.040(B) and 26.92.020 and 26.96.040 relating to fees and establishing a fee schedule	2	26.80.010
				26.80.050—26.80.070
				26.84.040
				26.92.020
				26.96.040
			3 Added	26.98.010

Ordinance Number	Date	Description	Section	Section this Code
69085	2-13-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2309 Locust Street		(not codified)
69086	2-13-2012	Vacation—Vacating a portion of CB 802 as bounded by Shenandoah, 13th, Lami and Interstate 55		(not codified)
69087	2-13-2012	Vacation—Vacating a portion of CB 896 bounded by Olive, 18th, Pine and 19th		(not codified)
69088	2-13-2012	Airport—Authorizing and directing the Mayor and Comptroller to accept and execute a Grant Agreement, Financial Assistance Agreement, offered by the St. Louis-Jefferson Solid Waste Management District for the Airport Food Waste Recycling Demonstration Pilot Program		(not codified)
69089	2-13-2012	Airport—Authorizing and directing the Director of Airports and Comptroller to accept and execute the "First Amendment to Lambert-St. Louis International Airport Ground Transportation Concession Agreement" to the Ground Transportation Concession Agreement AL-441 with Best Transportation		(not codified)
69090	2-13-2012	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the Lambert-St. Louis International Airport 7Office Building Lease Agreement AL-221 with a term ending January 31, 2017 with Trans States Holdings, Inc.		(not codified)
69091	2-13-2012	Airport—Establishing and authorizing a public works and improvement program-the "Airfield, Building & Environs Projects"		(not codified)
69092	2-13-2012	Traffic—Prohibiting commercial semi-trailer trucks or tractor-trailers during certain hours on Union Blvd. from the north highway boundary of I-70 to south boundary of West Florissant Ave, exempting from said prohibition emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles and vehicles with a Gross Vehicle Weight of less than 26,000 pounds	1, 2	17.68.010

Ordinance Number	Date	Description	Section	Section this Code
69093	2-13-2012	Traffic—Prohibiting commercial semi-trailer or tractor-trailers during certain hours on McCausland Ave. from the north boundary of Manchester to the south boundary of Wise Ave., exempting from said prohibition emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles and vehicles with a Gross Vehicle Weight of less than 26,000 pounds	1, 2	17.68.010
69094	2-23-2012	Excise—Repealing Ordinance 69000 pertaining to the issuance of any package or drink liquor licenses for premises within the boundaries of the Third Ward Liquor Control District and in lieu thereof supplementary exemptions		(not codified)
69095	2-23-2012	Excise—Repealing Ordinance 69004 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses from non-licensed premises within the boundaries of the Fourth Ward Liquor Control District for a period of 3 years		(not codified)
69096	2-23-2012	Secondhand Dealers and Pawnbrokers—Amending Section Two of Ordinance 63478, codified as Part I of Section 8.82.040 and enacting a new section on the same subject matter; amending Section Two of Ordinance 64311, codified as Part I of Section 8.82.050 and amending Section One of Ordinance 57502, codified as Section 8.72.030	1	8.82.040
			2	8.82.050
			3	8.72.030
69097	2-23-2012	Port Authority—Directing and authorizing the Mayor and Comptroller to enter into and execute a lease amendment with ACL Transportation Services LLC		(not codified)
69098	2-23-2012	Vacation—Vacating a portion of 15-20 foot wide east/west alley CB 4906-A as bounded by Waterman, Lake, Portland Place, Union and also known as Portland Court		(not codified)
69099	3- 6-2012	Special Business District—Gardenside Subdivision Special Business District, pursuant to Section 71.790 through 71.808 RSMo., settings its boundaries, tax rate, initial rate of levy subject to the approval of the qualified votes, bonding authority, uses for tax revenue, creating a board of commissioners		(not codified)
69100	3- 6-2012	Special Business District—Renewing and continuing the levy a tax on the real property located in the Gardenside Subdivision Special Business District and submitting a ballot measure to voters in the district		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69101	3- 6-2012	Grant—Authorizing and directing the Sheriff, on behalf of the Mayor, to enter into and execute a Grant Agreement with the Missouri Department of Public Safety to fund the Deputy Sheriff Salary Supplementation Program		(not codified)
69102	3- 9-2012	Excise—Repealing Ordinance 69010 setting forth an area which shall not be within the convention trade area	1	14.03.230
69103	3- 9-2012	Secondhand dealers—Requiring a petition to be filed for secondhand dealers licenses as defined under Chapter 8.82.010	1 Added	8.82.045
69104	3- 9-2012	Water Department—Authorizing a contract between the City, City of St. Peters, City of St. Charles, for the sale and purchase of water from the City for distribution by the City of St. Peters and City of St. Charles in their general systems; authorizing connections between the City of St. Louis system and City of St. Peters and City of St. Charles		(not codified)
69105	3- 9-2012	Water Department—Authorizing and directing the Board of Public Service to let contracts, purchase materials, equipment and supplies, employ labor, hire consultants, pay fees, salaries and wages to provide for the extension and improvement of the Municipal Water Works System		(not codified)
69106	3- 9-2012	Water—Authorizing and directing the Board of Public Service to let contracts, purchase materials, equipment and supplies, employ labor, hire consultants, pay fees, salaries and wages to provide for improvements to the Chain of Rocks and Howard Bend Water Treatment Plants of the Water Division		(not codified)
69107	3-19-2012	Cooperation Agreement—Authorizing and directing the execution of a Cooperation Agreement between the City, Board of Public Service, the Metropolitan Park and Recreation District d/b/a the Great Rivers Greenway District to coordinate and jointly support multiple Transportation and Recreation Improvement Project and Initiatives		(not codified)
69108	3-19-2012	Authorizing the 2012 St. Louis Works and the 50/50 Sidewalk Programs City Wide and appropriating $4.8 million from the Street Improvement Fund		(not codified)
69109	3-19-2012	City Landmark—Designating the New Jerusalem Church of God in Christ at the Cathedral at 2047 East Grand Blvd. as a City Landmark		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69110	3-19-2012	Zoning—Map District change from "G" District to "D" District in CB 1111, 1455 Monroe		(not codified)
69111	3-19-2012	Zoning—Map District change from "A" District to "F" District in CB 6260 (5833-75 Chippewa Street)		(not codified)
69112	3-20-2012	Historic District—Pertaining to the Lafayette Historic District, repealing Ordinance 63227, and enacting a new ordinance containing boundary and standards of the Lafayette Historic District		(not codified)
69113	3-20-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for St. Louis Hills/South Hampton/Lindenwood Park Scattered Sites I Area		(not codified)
69114	3-20-2012	Redevelopment Agreement—Authorizing the execution of redevelopment agreements between the City and Green Street Development Group		(not codified)
69115	3-20-2012	Redevelopment Plan/Area/Project—Designating a portion of 1549-1601 S. Jefferson Redevelopment Area under the Tax Increment Allocation Redevelopment Act; approving a redevelopment plan and redevelopment project; adopting tax increment financing within the area		(not codified)
69116	3-20-2012	Port Authority—Authorizing and directing the Mayor and Comptroller to enter into a lease agreement between the City and SCF Lewis & Clark Fleeting LLC for mooring privileges on certain land on the Unimproved Wharf for a period of 10 years with three five year mutual options		(not codified)
69117	3-20-2012	City Housing Conservation Program—Repealing Ordinance 68794 and enacting in lieu thereof a new section on the same subject matter	2	25.56.150
69118	3-28-2012	Water—Relating to excess payments designated by any person, firm, corporation on any water bill, personal property tax bill, real estate bill, or other bill in the City which is designated by ordinance for the City of St. Louis asset, services provided by the City or for a non-profit entity		(not codified)
69119	3-28-2012	Lafayette Square Park Fund—Establishing the Lafayette Square Park Fund and providing that in addition to revenues derived from those sources specified in 5.74.020 that additional revenues derived from sources specified shall be held in the fund and subject to 5.74	1, 2 Added	5.74.055

Ordinance Number	Date	Description	Section	Section this Code
69120	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3610 Palm Street		(not codified)
69121	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for the Bremen Homes Redevelopment Area		(not codified)
69122	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 1702 Carroll St.		(not codified)
69123	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4011 Detonty Ave.		(not codified)
69124	3-28-2012	Redevelopment Plan—Modifying the terms of the 20 year real estate tax abatement for 4229 Aubert Ave.		(not codified)
69125	3-28-2012	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute a quit claim deed unto VOLPI FOODS for property located in CB 3998-D, and known as numbered as 5151 R. Northrup 63310		(not codified)
69126	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3337 Missouri Ave.		(not codified)
69127	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3200-3222 Texas Ave.		(not codified)
69128	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3867-71 Shenandoah Ave. and 2250-56 S. 39th Street		(not codified)
69129	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2800-02 Shenandoah Ave.		(not codified)
69130	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 3644-3636 Bates St.		(not codified)
69131	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 2010 Kraft St.		(not codified)
69132	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4557 Flad Ave.		(not codified)
69133	3-28-2012	Vacation—Vacating a 15 foot wide "L" shaped alley in CB 5234 beginning at Clayton and ending at Taylor		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69134	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 925-927 S. Sarah St.		(not codified)
69135	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4537 Arco Ave.		(not codified)
69136	3-28-2012	Redevelopment Plan - Approving a Blighting Study and Redevelopment Plan for 4701-59 S. Spring Ave.		(not codified)
69137	3-28-2012	Streets—Designating the 3100 block of N. Garrison Ave. as "Rev. Theodore V. Foster Sr. St."		(not codified)
69138	3-28-2012	Community Improvement District—Approving the petition to establish the 1601 S. Jefferson Community Improvement District		(not codified)
69139	3-28-2012	Parking—Establishing valet parking zone districts as recommended by the Parking Commission; requiring a permit for all operators of valet parking services; requiring a permit for all valets, establishing standards of operation authorizing the City to establish special valet zones and for the Director of Streets to seek one or more valet operators that would have the right to operate within the valet zones	1—5 Added	17.25.010—17.25.050
69140	3-28-2012	Redevelopment Plan/Area/Project—Designating a portion of 2727 Washington Redevelopment Area pursuant to the Tax Increment Allocation Redevelopment Act; approving a redevelopment plan and a redevelopment project; adopting tax increment financing with the area and establishing the 2727 Washington Special Allocation Fund		(not codified)
69141	3-28-2012	Redevelopment Agreement—Adoption of a redevelopment plan, area and project; authorizing the execution of a redevelopment agreement with 4900 Manchester TIF, Inc. and designating 4900 Manchester TIF as developer of the redevelopment area		(not codified)
69142	3-28-2012	Easement—Authorizing and directing the Mayor and Comptroller to execute for consideration a termination and release of easement to cancel and terminate an easement was over certain property in CB 3946 known as 3946 Papin Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69143	3-28-2012	Transportation Development District—Authorizing the execution of an intergovernmental cooperation project agreement with the Parking Commission and the North Broadway Carrie Transportation Development District with the North Broadway Community Improvement District		(not codified)
69144	3-28-2012	Redevelopment Agreement—Affirming the adoption of a redevelopment plan, area and project, amending Ordinance 68971 and 67681; authorizing the execution of a Redevelopment Agreement with St. Louis Food Hub TIF		(not codified)
69145	3-28-2012	Redevelopment Plan—Approving an amendment to the City Hospital TIF Redevelopment Plan (RPA 2) under the Tax Increment Allocation Redevelopment Act		(not codified)
69146	3-28-2012	Redevelopment Agreement—Affirming the adoption of a redevelopment plan, area, project, authorizing the execution of a redevelopment agreement with the St. Louis Food Hub TIF and designating St. Louis Food Hub TIF as the developer of RPA 2		(not codified)
69147	3-28-2012	Vacation—Vacating a portion of air rights over a 6.5 wide portion of Olive Street adjacent to 3651 Olive Street in CB 2287		(not codified)
69148	4- 4-2012	Zoning Code—Requiring residential and commercial bicycle parking under the Zoning Code for all new construction or renovations equal to or in excess of one million dollars ($1,000,000) containing definitions, bicycle rack construction requirement, bicycle rack site requirements, bicycle parking requirements, exemptions, off-street parking reduction, an administrative waiver provision	1 Added	26.08.059, 26.08.060
			Added	26.08.107
			2 Added	26.16.085
			3	26.88.020
69149	5- 8-2012	Firemen's Retirement System—Discontinuing the accrual of benefits under the Firemen's Retirement System and repealing Chapter 4.18		(not codified)
69150	5- 8-2012	City Depositories—Recommended by the Board of Estimate and Apportionment as required by the Charter, Article XV, Section 25; amending Section Eleven of Ordinance 64457	1	5.12.100
69151	5- 8-2012	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of tax increment revenue notes not to exceed $450,000 plus issuance cost for the 2727 Washington Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69152	5- 8-2012	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of tax increment revenue notes not to exceed $10,200,000 plus issuance cost for the City Hospital RPA 3 Redevelopment Project—Phase 2A		(not codified)
69153	5- 8-2012	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of tax increment revenues notes not to exceed $2.4 million plus issuance cost for the City Hospital RPA 2 Redevelopment Project—Phase 2B-1		(not codified)
69154	6-22-2012	Annual Operating Budget Plan for Fiscal Year 2012-2013—Appropriating payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
69155	5-22-2012	Tax Revenue Notes—Provides for the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its General Revenue Fund through issuance of Tax Revenue Anticipation Notes		(not codified)
69156	5-22-2012	Grant—Authoring Director of Human Services to accept grant from Missouri Department of Health and Senior Services		(not codified)
69157	5-22-2012	Grant—Authorizing and directing Mayor to apply for and enter into agreements for the AIDS United Access to Care Social Innovation Program and to expend grant funds		(not codified)
69158	5-25-2012	Excise—Prohibiting the issuance of package liquor license for the Third Ward Liquor Control District		(not codified)
69159	5-25-2012	Excise—Prohibiting the issuance of 3 am closing permits for non-3 am licensed premises within the Twenty-Eighth Ward Liquor Control District		(not codified)
69160	5-25-2012	Zoning—Rezoning CB 680, 780, 781, 782, 783, 787, 788, 790, 791, 798, 806, 809, 842, & 843 to either D, F, or G only		(not codified)
69161	5-25-2012	Airport—Airport Commission authorizing transfers up to $2,600,000 from Airport Development Fund to Airport Revenue Fund for costs associated with certain capital equipment		(not codified)
69162	5-25-2012	Airport—Authorizing the issuance of Airport Revenue Bonds of $35,000,0000		(not codified)
69163	5-25-2012	Airport—Airport Commission recommending and approving Seventh Supplemental Appropriation of $1,246,398.85		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69164	6- 5-2012	Preservation Review Districts—Amending Ordinance 64832 and 66609 by adding to boundaries of three Preservation Review Districts		(not codified)
69165	6- 5-2012	Public Works and Improvement Project—Establishing a public works and improvement project for Kingshighway Blvd. Bridge over Union Pacific Railroad involving reconstruction of the bridge and associated roadway improvements		(not codified)
69166	6- 5-2012	Streets—Establishing a stop site for all eastbound traffic on Aldine at Bishop		(not codified)
69167	6- 5-2012	Streets—Repealing Section Four of Ordinance 64105, codified as Section 20.55.030, and establishing conditions for street performer permits	1	20.55.030
69168	6- 5-2012	Parking—Parking Commission recommending appropriation for operating expenses, capital improvement expenses, debt service expenses for Parking Division assets in the amount of $14,027,042		(not codified)
69169	6-20-2012	Zoning—District map change in CB 2782.03, 4592.04, and 4593 contingent upon property being acquired by the Zoo		(not codified)
69170	6-20-2012	Vacation—Vacating a portion of LaSalle St. to Compton Ave. to Virginia Ave., and Virginia Ave. to Chouteau, and Chouteau to LaSalle		(not codified)
69171	6-20-2012	Vacation—Vacating alleys bounded by Papin, Pacific, Chouteau and Vandeventer in portion of CB 3926		(not codified)
69172	6-20-2012	Transit Sales Tax—Appropriation of $9,975,000 from the said sales tax approved 1994 to Bi-State Development Agency for period of July 1, 2012 through June 30, 2013		(not codified)
69173	6-20-2012	Transit Sales Tax—Appropriation of $9,975.000 from said sales tax approved 1997 to Bi-State Development Agency for a period of July 1, 2012 through June 30, 2013		(not codified)
69174	6-20-2012	Transportation Trust Fund—Appropriation of $19,950,000 from Transportation Trust Fund to Bi-State Development Agency for transportation purposes		(not codified)
69175	6-22-2012	Zoning—Rezoning parcels in CB 5217 (3617 Glasgow and 2900-50 Natural Bridge) from C, F, G district to F District only		(not codified)
69176	6-22-2012	Zoning—Rezoning 1712, 1714 & 1716 N. 14th Street and 1713 & 1715 N. 13th Street in CB 628 from D to F District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69177	6-22-2012	Zoning—Rezoning 7201-03 Piccadilly in CB 5100 from A & F to F District only		(not codified)
69178	6-22-2012	Zoning—Rezoning 2900-08 Indiana in CB 1971 from F to C		(not codified)
69179	6-22-2012	Zoning—Rezoning 8718 S. Broadway & 416 E. Catalan in CB 3248, 3259, and 3266 from K & J to J District only		(not codified)
69180	6-22-2012	Airport—Accepting and executing grant agreement from FAA in the amount of $12,763,863 runway rehabilitation		(not codified)
69181	6-22-2012	Budget—Amending Ordinance 68882, authorizing a supplemental appropriation for 2011-2012 operating expenses in the amount of $3,550,000		(not codified)
69182	7- 2-2012	Redevelopment Agreement—Authorizing the execution of a Third Amendment to the Redevelopment Agreement between the City and Adler Lofts		(not codified)
69183	7- 2-2012	Firemen's Retirement System—Repealing Section 6 of Ordinance 49623, codified as Section 4.18.060, and enacting a new section on the same subject	2 Rnbd	4.18.060
			as	4.18.060A
			3 Added	4.18.060B
69184	7- 2-2012	Sun screening Devices—Prohibition of sun screening devices applied to windshield or windows of motor vehicles	1, 2 Added	17.16.415
69185	7- 9-2012	Board of Aldermen—Submitting to the qualified voters an amendment to the Charter to restructure the Board of Aldermen by reducing the body to fourteen aldermen representing fourteen wards in 2021 (passed by voters on 11-6-12)	1	Chtr. Art. I, § 3
				Chtr. Art. II, § 3
				Chtr. Art. IV, §§ 1, 2
69186	7- 9-2012	Streets—Designating 3800 block of Clarence Avenue as "Rev. Robert D. Strong, Sr. Avenue"		(not codified)
69187	7- 9-2012	Streets—Designating 1500 block of Penrose as "Pastor Emeritus Charlie Dooley Ave."		(not codified)
69188	7-13-2012	Streets—Establishing a four way stop for all traffic at Penrose and Darby Ave.		(not codified)
69189	7-13-2012	Classified Service Employees—Regulating employer and employee working relationships between the City and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leave, and authorization of Deferred Compensation Plan, repealing Ordinance 68450, 68711, and 68948 allocating certain employees to a grade with rate	1—18	4.10.010—4.10.180
			19	4.10.185
			20—23	4.10.190—4.10.220
			24—28	4.10.230—4.10.270
			30 Rpld	4.10.215

Ordinance Number	Date	Description	Section	Section this Code
69190	7-13-2012	Sheriff's Office—Repealing Ordinance 68708, establishing salaries of employees in the Sheriff's Office and fixing the annual rate of compensation of command personnel and deputies	1 Rpld	4.36.010—4.36.150
			2—15Added	4.36.010—4.36.140
69191	7-13-2012	Collector of Revenue—Relating to the appointment of an salaries of certain employees in the Collector of Revenue's Office; repealing Ordinance 68541	1 Rpld	4.44.010—4.44.070
			2—8 Added	4.44.010—4.44.090
69192	7-13-2012	Recorder of Deeds—Repealing Ord. 6874 and enacting new ordinance relating to employees and salaries	1 Rpld	4.34.010—4.34.100
			2—11Added	4.34.010—4.34.100
69193	7-13-2012	Medical Examiner & Morgue—Regulating employer and employee working relationships including a compensation plan, terms and conditions of employment, benefits, leave, and repealing Ordinance 68710	1—23Added	4.54.010—4.54.230
			25 Rpld	4.54.010—4.54.240
69194	7-13-2012	Circuit Attorney's Office—Allocating positions established under Section 56.540 RSMo. to classes with grades and a schedule setting minimum and maximum salaries for grades by repealing Ordinance 68743	1 Rpld	4.48.010—4.48.060
			2 Added	4.48.010, 4.48.020
			3—6 Added	4.48.030—4.48.060
69195	7-13-2012	Treasurer's Office—Relating to position classifications and salaries of the Treasurer's Office and repealing Ord. 68709	1 Rpld	4.26.070, 4.26.080
			2	4.26.015
			3	4.26.020
			4—6	4.26.021—4.26.023
			7—9	4.26.040—4.26.060
69196	7-13-2012	Parking Division—Relating to position classifications and repealing Ordinance 68707	1 Rpld	4.30.025, 4.30.026
			2	4.30.010
			3	4.30.012
			4	4.30.015
			5	4.30.020
			6—9	4.30.021—4.30.024
69197	7-13-2012	License Collector—Relating to the appointment and rates of compensation for employees and repealing Ordinance 68706	1—12Added	4.28.010—4.28.120
			13 Rpld	4.28.010—4.28.130

Ordinance Number	Date	Description	Section	Section this Code
69198	7-18-2012	Zoning—Relating to signs at carry-out restaurants and motor fuel pumping stations, codified as 26.40.026(B)(1)(b) and 26.40.027(B)(2), and enacting new sign code codified as 26.68 and repealing Section Five of Ordinance 62588 and Ordinance 68849	2	26.40.026 B.1.b.
				26.40.027 B.2.
			3 Rpld	26.68.010—26.68.190
			4 Added	26.68.010—26.68.020,
				26.68.055—26.68.190
69199	7-18-2012	Zoning—Enacting a new form-based code overlay zoning district	1—8 Added	26.82.010—26.82.080
			9	26.98.010
69200	7-18-2012	Tax Increment Revenue Notes—Amending Ordinance 68874 and authorizing the issuance and delivery of Tax Increment Revenue Notes for the Grand Center Redevelopment Project and Authorizing a Third Supplemental Trust Indenture		(not codified)
69201	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2111 Allen Ave		(not codified)
69202	7-24-2012	City Housing Conservation Program—Repealing Section 2, 8, 12, & 17 of Ordinance 67984 and enacting news section on the same subject matter	1	25.56.010
			2	25.56.070
			3	25.56.110
			4	25.56.150
				25.56.050 (Exh. A)
69203	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4205 Maryland		(not codified)
69204	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2122 Victor St.		(not codified)
69205	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4537 Michigan Ave.		(not codified)
69206	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4020 Castleman Ave.		(not codified)
69207	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4154 Shenandoah Ave.		(not codified)
69208	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4063 Castleman Ave.		(not codified)
69209	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3515 Oregon Ave.		(not codified)
69210	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4528 Oakland Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69211	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2309 Menard St.		(not codified)
69212	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3902-12 Utah St.		(not codified)
69213	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 701 N. 11th Street		(not codified)
69214	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3905-3907 Castleman Ave.		(not codified)
69215	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3808 Castleman Ave.		(not codified)
69216	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3539-3547 Wisconsin Ave.		(not codified)
69217	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5201-5211 Hampton Ave.		(not codified)
69218	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for Baden Scattered Sites V		(not codified)
69219	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for Walnut Park Scattered Sites		(not codified)
69220	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5025 Pattison Ave.		(not codified)
69221	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3878-80 Arsenal		(not codified)
69222	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3618-20 Hartford St.		(not codified)
69223	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3837 McDonald Ave.		(not codified)
69224	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan		(not codified)
69225	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 1574-82 Fairmount Ave.		(not codified)
69226	7-24-2012	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of Tax Increment Revenue Notes of up to $1,700,000 for 1549-1601 S. Jefferson RPA1 Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69227	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2830-2838 Magnolia Ave.		(not codified)
69228	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2355 Hickory St.		(not codified)
69229	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2346 Hickory St.		(not codified)
69230	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2124 Oregon		(not codified)
69231	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4336 Vista Ave.		(not codified)
69232	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4501-4503 Wichita Ave.		(not codified)
69233	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4224-4230 Gibson Ave.		(not codified)
69234	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4345 Arco Ave.		(not codified)
69235	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2200-2202 Wyoming Ave.		(not codified)
69236	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3450 Missouri Ave.		(not codified)
69237	7-24-2012	Vacation—Vacating portion of alley in CB 6190 bounded by Chippewa, Donovan and Lansdowne Ave.		(not codified)
69238	7-24-2012	Vacation—Vacating an irregular portion of Clayton Ave. in CB 5429-D and 7036 Clayton between Skinker and Clayton Road		(not codified)
69239	7-24-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 6928-6970; 6911-6973 Chippewa Ave.		(not codified)
69240	7-24-2012	Development Plan—Terminating MODESA Development Plan for Ballpark Development Area dated 10-22-08 and 11-6-08 and terminating development agreement and dissolving special allocation fund		(not codified)
69241	7-24-2012	Development Area—Designating an area bounded by Eight Street on the West, Walnut Street on the North, South Broadway on the East and Clark Street on the South as Development Area; Adopting MODESA financing and Redevelopment Plan within the Area, establishing a Special Allocation Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69242	7-24-2012	Tax Revenue Bonds—Assignment of local MODESA revenues, CID & TDD revenues and other revenues to pay bonds issued by IDA, authorizing execution of documents to finance development costs		(not codified)
69243	7-24-2012	Development Agreement—Reaffirming adoption of Development Plan, Area, and Project under MODESA and authorizing the execution of a development agreement		(not codified)
69244	7-24-2012	Tax Revenue Notes—Modifying, amending and restating the terms of Ordinance 68431 relating to the issuance of tax revenue notes of up to $32,000,000 plus cost of issuance for The Laurel/555 Washington Redevelopment Project		(not codified)
69245	7-29-2012	Firemen's Retirement Plan—Establishing retirement, disability, and death benefits for the firefighters and their dependents	2 Added	4.19.010—4.19.170
69246	9-26-2012	Parks—Including City owned property located in CB 2662 and 2661 West in Minnie Wood Park		(not codified)
69247	10- 5-2012	Cooperation Agreement—Authorizing and directing the execution of a Cooperation Agreement with YMCA of Greater St. Louis; and the appropriation of $126,000 from the Special Parks Fund 1122 to offset start up costs for recreation facility in O'Fallon Park		(not codified)
69248	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2416 McNair St.		(not codified)
69249	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3224-26 Michigan Ave.		(not codified)
69250	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3927-3929 Shenandoah		(not codified)
69251	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3661 Shenandoah Ave.		(not codified)
69252	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3953-65 Laclede Ave.		(not codified)
69253	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4401-55 Chouteau Ave.		(not codified)
69254	10-19-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 1300-04 Dolman St.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69255	10-19-2012	Building Division—Adoption of the Uniform Plumbing Code of 2009, repealing Ordinances 66615, 61713, 62610, 62682, 65031, & 65932	1 Rpld	25.04.010—25.04.1460
			3 Added	25.04.010—25.04.310
69256	10-19-2012	Grant—Authorizing and directing the Director of Public Safety to enter and execute a Grant Agreement with the U.S. Department of Justice		(not codified)
69257	10-29-2012	Airport—Directing of Airports and Comptroller to execute Agreement for Fleet of Vehicles & Special Equipment Maintenance/Repair Services at Lambert-St. Louis International Airport with a 5 year term		(not codified)
69258	10-29-2012	Agreement—Authorizing and directing to enter into agreements with Casa de Salud for the Needs Assessment project entitled Salud de Nuestra Poblacion		(not codified)
69259	10-29-2012	Traffic—Establishing a stop site for all northbound and southbound traffic on Texas Ave. at Crittenden St.		(not codified)
69260	10-29-2012	Airport—Authorizing a First Supplemental Appropriation of $4 million from the Airport Development Fund		(not codified)
69261	10-29-2012	Community Improvement District—Approving the Petition to establish the Grand Center Area Community Improvement District		(not codified)
69262	10-29-2012	Airport—Authorizing execution of grant agreements with FAA for public works and improvement programs		(not codified)
69263	11- 2-2012	Solicitation—Prohibiting solicitation on highway entrance and exit ramps; amending Section One, Part 829.060(e) of Ordinance 57831, codified as Section 17.20.070(e)	1 Added	17.02.295
				17.02.510
			2	17.20.070
69264	11- 2-2012	Bicyclist—Protecting the safety of pedestrians, cyclists, and motor vehicle occupants; containing definitions; prohibited activities	1—3 Added	17.16.460
69265	11- 2-2012	Port Authority—Authorizing execution of second amendments to lease with ACL Transportation Services, LLC		(not codified)
69266	11- 2-2012	Lease—Authorizing execution of 99 year term lease with Missouri Highways and Transportation Commission and for consideration City's use of State land at Shreve Ave.		(not codified)
69267	11- 2-2012	Vacation—Vacating a portion of Olive St. adjacent to CBs 1042-W and 1057 and adjacent to 3411 Olive		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69268	11- 2-2012	Vacation—Vacating a portion of Seventh St. beginning at Cerre Street		(not codified)
69269	11- 2-2012	Vacation—Vacating a portion of 14th St. beginning at Lafayette Ave. and extending southwardly to a point, and Soulard St. between 13th Street and 14th Street		(not codified)
69270	11- 2-2012	Airport—Authorizing execution of Airport News/Gift & Specialty Retail Concession Agreement AL-212		(not codified)
69271	11- 8-2012	Building Division—Establishing regulations for pedestrian access to buildings for which public access rights is not required; amending Section Three of Ordinance 68788	6	25.01.280
69272	11- 8-2012	Yard Waste—Relating to yard waste collection and disposal	1—3 Added	11.85.010—11.85.030
69273	11- 8-2012	Traffic—Establishing a stop site for all southbound traffic for southbound traffic traveling on S. Compton at Halliday		(not codified)
69274	11- 8-2012	Traffic—Establishing a stop site for intersection of Russell Blvd. and Oregon Ave.		(not codified)
69275	11- 8-2012	Recreational vehicles—Pertaining to the parking of recreational vehicles; amending Section One and Two of Ordinance 58698	1	17.73.010
			2	17.73.020
69276	11- 8-2012	Traffic—Establishing a stop site for all westbound traffic traveling on Ashland and a stop site for all eastbound traffic traveling on Ashland Ave.		(not codified)
69277	11- 8-2012	Community Improvement District—Approving the Petition to establish the Flora Place Improvement District		(not codified)
69278	11- 8-2012	Zoning—District map change from J to F in CB 4807, 4450 W. Papin		(not codified)
69279	11- 8-2012	Zoning—District map change from E and H to only H District in CB 3893 100 N. Euclid Ave.		(not codified)
69280	11- 8-2012	Zoning—District map change from F to C to in CB 4563, from C to G in CB 4564, from C and G to only G district in CB 4564, from G and C to D in CB 4565		(not codified)
69281	11- 8-2012	Zoning—District map change from B and F to D district in CB 2482; 4307-09, 4311, 4315, 4317, 4325, 4327 John Avenue		(not codified)
69282	11-16-2012	Traffic—Pertaining to impeding and interfering with pedestrian and vehicular traffic; repealing Section One, part 827.280 of Ordinance 57831	2 Rpld	17.16.270
			4 Added	17.16.275
69283	11- 8-2012	Zoning—District map change from C to the H District in CB 5035 (3930 McPherson Ave.)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69284	11- 8-2012	Vacation—Vacating a portion of alley in CB 4380-E as bounded by Penrose Park (CB 4379), Euclid, Penrose St., Aubert Ave.		(not codified)
69285	11- 8-2012	Traffic—Establishing a stop site for all northbound and southbound traffic traveling on N. 1st St. at Angelica St.		(not codified)
69286	11- 8-2012	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on Arsenal St. at Oak Hill Ave.		(not codified)
69287	11- 8-2012	Grant—Authorizing submission of 2013 Annual Action Plan to HUD for Community Development Block Grant, HOME Investment Partnership, Emergency Solutions Grant, and HOPWA and authorizing and directing agencies and nonprofit corporations to expend grant funds		(not codified)
69288	11-13-2012	Redevelopment Agreement—Authorizing the execution of a Master Redevelopment Agreement with City, Bottle District Investors and Northside Regeneration Agreement		(not codified)
69289	11-13-2012	Redevelopment Agreement—Authorizing the execution of an amended and restated redevelopment agreement for 1601 S. Jefferson Project Area 1 with Green Street Development Group		(not codified)
69290	11-13-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 6901 McKissock Ave.		(not codified)
69291	11-16-2012	Prostitution—Pertaining to prostitution loitering	2—5 Added	15.34.040
69292	11-20-2012	Special Business District—Renewing the Tower Grove South Concerned Citizens Special Business District, setting boundaries, tax rate, initial rate of levy and creating a board of commissioners		(not codified)
69293	11-20-2012	Special Business District—Ballot measure submitting measure to citizens in the Tower Grove South Concerned Citizens Special Business District		(not codified)
69294	11-21-2012	Landmark Designation—Designating 3117 St. Louis Avenue, Eastern Star Missionary Baptist Church, as a St. Louis Landmark		(not codified)
69295	11-21-2012	Excise—Repealing Ordinance 68999 and prohibiting the issuance of a package or drink licenses for any currently non-licensed premises within the boundaries of the Nineteenth Ward Liquor Control District for a period of 3 years		(not codified)
69296	11-26-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2710-16 Lafayette Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69297	11-27-2012	Redevelopment Plan—Modifying the terms of the real estate tax abatement for 3952-58 S. Grand Ave. in Gravois/South Grand/Meramec Redevelopment Area		(not codified)
69298	11-27-2012	Intergovernmental Cooperation Agreement—Agreement between the City and Chouteau Crossing Community Improvement District		(not codified)
69299	11-27-2012	Historic District—Extending boundaries of the Hyde Park Historic as set in Ordinance 57484		(not codified)
69300	11-27-2012	Intergovernmental Cooperation Agreement—Agreement between the City and City and 1601 S. Jefferson Community Improvement District		(not codified)
69301	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4052 Botanical Ave. Redevelopment Area		(not codified)
69302	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3301 Pestalozzi St.		(not codified)
69303	11-27-2012	Redevelopment Plan—Approving an Amended Blight Study and Redevelopment Plan for 210 Tucker Blvd.		(not codified)
69304	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3801 Wyoming St.		(not codified)
69305	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3862 McDonald Ave.		(not codified)
69306	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3838 S. Utah Pl.		(not codified)
69307	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2315-2323 Tennessee Ave.		(not codified)
69308	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2801-03 Accomac St.		(not codified)
69309	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3408 Wisconsin Ave.		(not codified)
69310	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3312 Missouri Ave.		(not codified)
69311	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 1920 Sidney St.		(not codified)
69312	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2226 Edwards St.		(not codified)
69313	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5130 Shaw		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69314	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5231-5235 Bischoff Ave.		(not codified)
69315	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4059-61 Shenandoah Ave.		(not codified)
69316	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3837 Wyoming St.		(not codified)
69317	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 6700 Arsenal St.		(not codified)
69318	11-27-2012	Redevelopment Plan—Amending Ordinance 64509 by modifying the terms of the real estate tax abatement for 5700 Oakland		(not codified)
69319	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5200-40 N. Second St.		(not codified)
69320	11-27-2012	Redevelopment Plan—Amending Ordinance 66729 by modifying the terms of the real estate tax abatement for 2626, 2632, & 2634 Wyoming St.		(not codified)
69321	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3951 Cleveland Ave.		(not codified)
69322	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3825 Cleveland Ave.		(not codified)
69323	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3932 Castleman Ave.		(not codified)
69324	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 5237-5239 Bischoff Ave.		(not codified)
69325	11-27-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3614 Arsenal		(not codified)
69326	11-27-2012	Redevelopment Plan—Amending Ordinance #66552 by modifying the tax abatement 4300-04, 4307-27, 4337-49 John Ave., 3727 Carter Ave., 3724-28 W. Florissant Ave.		(not codified)
69327	11-27-2012	Preservation Review Districts—Amending Ordinances 64832 and 66609 by adding new boundaries to new Preservation Review Districts		(not codified)
69328	11-27-2012	Development Agreement—Agreement with Lord & Taylor LLC authorizing the reimbursement to Lord & Taylor LLC in accordance with the terms of the agreement		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69329	12-14-2012	Vacation—Vacating a portion of north/south alley in CB 1740 bounded by Salisbury, N. Florissant, Mallinckrodt and 22nd and a portion of CB 1741		(not codified)
69330	12-14-2012	Zoning—District Map change from F to G in CB 4591.04 at 5924 Clayton		(not codified)
69331	12-14-2012	Lease—Directing and authorizing the Mayor, Comptroller and Treasurer to enter into a Ground Lease with an Option to Purchase with the South Grand Community Improvement District for real estate located in CB 2101		(not codified)
69332	12-19-2012	Secondhand Dealers—Pertaining to license application of secondhand dealers, amending Section One of Ordinance 69096, amending Section Two of Ordinance 68812, Section Two of Ordinance 69096, Section Two of Ordinance 63478 and adding a new section pertaining to the purchasing requirements of secondhand cellular phones and other electronic communication devices	1	8.82.010
			2—4	8.82.040—8.82.060
			5 Added	8.82.065
			6 Added	8.82.070
			8 Added	8.82.137
69333	12-19-2012	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on McMillan Ave. at Marcus Ave.		(not codified)
69334	12-19-2012	Traffic—Directing Director of Streets to temporarily close, barricade, or otherwise impede the flow of traffic on College Ave. at Carter Ave.		(not codified)
69335	12-19-2012	Public Works & Improvement Project—Establishing a public works and improvement project for the design and construction of various roadway infrastructure improvements on Skinker between Clayton Road and Clayton Ave., and Oakland Ave between Skinker and Hampton		(not codified)
69336	12-19-2012	Public Works & Improvement Project—Establishing a public works and improvement project for the design and construction of the second phase of the Dr. Martin Luther King Pedestrian Lighting Project involving infrastructure improvements to Arlington Ave. to Kingshighway on Dr. Martin Luther King Drive		(not codified)
69337	12-19-2012	Traffic—Establishing a stop sign for all northbound and southbound traffic traveling on Arendes Dr. at Dover Pl. and establishing a stop site for all eastbound traffic traveling on Dover at Arendes Dr.		(not codified)
69338	12-19-2012	Traffic—Establishing a stop sign for all eastbound and westbound traffic traveling on Scanlan Ave. at Leola Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69339	12-19-2012	Traffic—Establishing a stop site for all northbound and southbound traffic traveling on Tamm Ave. at Simley Ave.		(not codified)
69340	12-19-2012	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on Juniata at Clifton Ave.		(not codified)
69341	12-20-2012	Special Business District—Establishing the Forest Park Southeast Business District, settings its boundaries, tax rate, initial rate of levy and creating a board of commissioners		(not codified)
69342	12-20-2012	Special Business District—Submitting ballot measure to voters to establish the Forest Park Southeast Special Business District		(not codified)
69343	12-20-2012	Special Business District—Establishing the Botanical Heights West Special Business District, settings its boundaries, tax rate, initial rate of levy and creating a board of commissioners		(not codified)
69344	12-20-2012	Special Business District—Submitting ballot measure to voters to establish the Botanical Heights West Special Business District		(not codified)
69345	12-20-2012	Zoning—Repealing Deaconess Health System Community Unit Plan established under Ordinance 63256 for parcels of land in CB 2781.05, 2782.03, 4592.04, and 4593; contingent upon the acquisition of the land by the St. Louis Zoo		(not codified)
69346	12-20-2012	Excise—Amending Section Two of Ordinance 68536, paragraphs 14.01.085, 140.01.300, 14.01.310, 14.01.344, 14.01.130(B), and repealing Section Two of Ordinance 68536 definitions for special sports stadium license, Ballroom Sunday Sales Permit and Places of Entertainment or Amusement Sunday Sales Permit, and repealing license permit fees in Ordinance 68536, Section Two, paragraphs 14.08.010(14), 14.08.010(15), 14.08.010(16) and 14.08.010(17); amending petition exceptions in Ordinance 68536, Section Nine, paragraphs 14.08.030, 14.08.050	1 Added	14.01.082
			Added	14.01.084
				14.01.085
				14.01.130 B.
				14.01.300
				14.01.310 C.
				14.01.344
			2	14.01.130
			3	14.08.010 B.
			4	14.08.050 B.
			5	14.08.030
				14.08.050 A., C.

Ordinance Number	Date	Description	Section	Section this Code
69347	12-20-2012	Public Works & Improvement Project—Authorizing and directing the Board of Public Service to let contracts, purchase materials, equipment and supplies, employ labor, hire consultants, pay fees, salaries and wages and appropriate $5 million dollars from the Water Works Contingent Account		(not codified)
69348	12-20-2012	Grant—Authorizing and directing the Fire Chief to enter into and execute a Grant Agreement with the Federal Emergency Management Agency to fund a 2011 Staffing for Adequate Fire and Emergency Response project and to expend funds by entering into contracts		(not codified)
69349	12-20-2012	Excise—Amending Section 14.08.220 the Excise Code relating to 3:00 a.m. closing permits	1	14.08.220
69350	12-20-2012	Elections—Enacting a new section requiring the disclosure of donors to certain not for profit entities that make expenditures or contributions in support or opposition to a candidate for mayor, comptroller, president of the board of aldermen or a City ballot measure	1 Added	2.08.440
69351	12-20-2012	Development Agreement—Pertaining to real property located at One North Jefferson Ave.; establishing an earnings and payroll tax reimbursement account in support of the development described herein		(not codified)
69352	12-20-2012	Traffic—Temporarily closing or barricading flow of traffic on Primm Lane by blocking said traffic flow at the west curb lane of Stolle Street		(not codified)
69353	12-28-2012	Firemen's Retirement System—Terminating the Firemen's Retirement System, repealing certain sections of Ordinance 69149 and of Ordinance 69245, codified as Section 4.19, and enacting new sections pertaining to the same subject	3—5	4.19.010
			6—8	4.19.020
			9, 10	4.19.030
			11	4.19.040
			12—2016	4.19.060
			17, 18	4.19.070
			19—22	4.19.080
			23, 24	4.19.120
			25	4.19.130
			26, 27	4.19.140
			28	4.19.160

Ordinance Number	Date	Description	Section	Section this Code
69354	12-28-2012	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute a quit claim deed for certain property in CB 4879, numbered as 4354R West Papin Street, in consideration of $3,100.00 to the State of Missouri		(not codified)
69355	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3870 S. Utah Pl.		(not codified)
69356	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4158 Arsenal St.		(not codified)
69357	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2625 S. 11th St.		(not codified)
69358	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4008 Castleman Ave.		(not codified)
69359	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4137 Manchester Ave.		(not codified)
69360	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4225-29 Laclede Ave.		(not codified)
69361	12-28-2012	Memorandum of Agreement—Authorizing Fourth Amendment to Memorandum of Agreement with Bi-State Development Agency of Missouri-Illinois Metropolitan District and St. Louis County and authorizing Agency to issue refunding obligations		(not codified)
69362	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 1218 Central Industrial Drive		(not codified)
69363	12-28-2012	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 1706-28 Carroll St.		(not codified)
69364	12-28-2012	Tax Increment Financing Plans—Determining that certain Tax Increment Financing Plans listed in the exhibit are making satisfactory progress under the proposed time schedule for completion		(not codified)
69365	12-28-2012	Redevelopment Plan—Dissolving the Special Allocation Fund for the 4391-99 West Pine Blvd. Redevelopment Project Area; terminating the designation as a redevelopment area		(not codified)
69366	12-28-2012	Tax Increment Revenue Notes—Amending Ordinance 67314 and Ordinance 67021 by reducing the interest rate on the tax-exempt tax increment financing notes issued to Great Southern Bank for Warehouse of Fixtures Redevelopment Project and 4100 Forest Park Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69367	12-28-2012	Vacation—Vacating public surface rights for travel in a portion of CB 1748		(not codified)
69368	1-16-2013	Airport—Directing the Director of Airports and the Comptroller to enter into and execute the "First Amendment to East Terminal Agency Agreement" to the Lambert-St. Louis International Airport East Terminal Agency		(not codified)
69369	1-16-2013	Airport—Directing the Director of Airports and the Comptroller to enter into and execute the Service Agreement for Solid Waste Disposal & Recycling Services with a 5 year term with Allied Services		(not codified)
69370	1-16-2013	Airport—Establishing and authorizing a public works and improvement project at Lambert-St. Louis International Airport, consisting of capital improvement projects to and for terminal complexes, concourses, parking facilities, roadways and other improvements		(not codified)
69371	1-16-2013	Budget—Amending Ordinance 69154 and authorizing a supplemental appropriation of $40,000 from excess payments on water bills and personal and real property tax bills received into the "Heat-up St. Louis Fund," "The Big Brothers Big Sisters of Eastern Missouri Fund," The Backstoppers, Inc. Fund" and the "Pet Spay, Neuter and Microchip and Assistance Fund"		(not codified)
69372	1-18-2013	Parks—Imposing a three-sixteenths of one cent sales tax on all retail sales made in the City which are subject to taxation for purposes of funding the operation and maintenance of the Metropolitan Park and Recreation District; submitting to the qualified voters a ballot measure to approve tax for funding the operation and maintenance of the Metropolitan Park and Recreational District		(not codified)
69373	1-22-2013	Airport—Authorizing and directing the Comptroller, City Counselor, and Director of Airports to enter into, execute, and deliver a Settlement Agreement between the City and American Airlines		(not codified)
69374	1-25-2013	Park—Enacting a curfew for Marie Flower Park and Phillip J. Lucier Park and containing exceptions for permit holders	1, 2 Added	22.18.027
69375	1-25-2013	Traffic—Establishing a four way stop site at the intersection of Logan Street and Lowell Street by regulating all eastbound and westbound traffic traveling on Logan Street at Lowell Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69376	1-25-2013	Zoning—District map change from C to F District in CB 4837 at 5012, 5014, & 5016 Enright		(not codified)
69377	1-25-2013	Zoning—District map change from B and H to H District only in CB 1495 at 3522 Utah and 3521, 3523, 3527 & 3529-41 McKean		(not codified)
69378	1-25-2013	Traffic—Establishing a four way stop site at the intersection of McNair Ave. and Victor St.		(not codified)
69379	1-30-2013	Redevelopment Plan/Area/Project—Designating the Northeast Hampton Berthold Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Area; establishing the Northeast Hampton Berthold Special Allocation Fund		(not codified)
69380	1-30-2013	Redevelopment Agreement—Authorizing the execution of agreement with Tri-Star Imports, Inc., designating Tri-Star Imports as developer of the redevelopment area		(not codified)
69381	1-30-2013	Port Authority—Repealing Ordinance 68909, and enacting a new ordinance authorizing and directing the Mayor and Comptroller to enter into a Lease Agreement between the City and Great Rivers Greenway District for Unimproved Wharf for a 10 year lease with 3 five year mutual options		(not codified)
69382	2- 6-2013	Airport—Repealing Ordinance 64406, 65492, and 66855 pertaining to the regulation of and schedule fees for ground transportation and enacting a new ordinance on the same subject		(not codified)
69383	2- 6-2013	Airport—Transfer of $13,727,769 from the Debt Service Stabilization Fund to the Airport Revenue Fund		(not codified)
69384	2- 6-2013	Airport—Authorizing and directing the Director to enter into and execute on behalf of the City the Lambert-St. Louis International Airport Lease Agreement AL-226 with Jet Linx St. Louis, LLC		(not codified)
69385	2- 6-2013	Airport—Authorizing and directing the Director to enter into and execute the Lambert-St. Louis International Airport Lease Agreement AL-230 with Laclede Venture Corp		(not codified)
69386	2- 6-2013	Airport—Authorizing and directing the Director to enter into and execute the City Modification No. 4 with the United States of America		(not codified)
69387	2- 8-2013	Agreement—Authorizing the Board of Public Service to enter into a Cost Apportionment Agreement with MODOT for the City to contribute $20,000 for the installation of aesthetic light on the New Mississippi Bridge		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69388	2-12-2013	Airport—Authorizing and directing the issuance of Airport Revenue Bonds in an aggregate principal amount not to exceed $37,500,000		(not codified)
69389	2-12-2013	Redevelopment Plan/Project Area—Designating the St. Louis Innovation District Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Area; Adopting and approving a redevelopment plan and projects for redevelopment project area 1A(I) 1B and establishing the St. Louis Innovation Special Allocation Fund		(not codified)
69390	2-12-2013	Redevelopment Agreement—Authorizing the execution of a redevelopment agreement with St. Louis Innovation District; designating St. Louis Innovation District, LLC as Developer; amending Ordinance 66633		(not codified)
69391	2-14-2013	Zoning—District Map change from B and F to B only in CB 4494 at 3100-18 N. Kingshighway		(not codified)
69392	2-14-2013	Traffic—Temporarily closing and barricading flow of traffic at Northcrest Lane at the south curb of Goodfellow Blvd.		(not codified)
69393	2-14-2013	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute a Quit Claim Deed to KLR KATO LLC for certain properly located in CB 564E, known as 1211 N. Tucker Blvd upon receipt of $200,000		(not codified)
69394	2-14-2013	Zoning—District map change from C to G District in CB 1884 at 1523, 1525, & 1529 Bacon St.		(not codified)
69395	2-14-2013	Zoning—Repealing Section 10 of Ordinance 60483, and enacting a new section on the same subject; adding a new definition for convenience store	1 Added	26.08.104.1
			2	26.36.025
69396	2-14-2013	Public Works & Improvements—Authorizing the 2013 St. Louis Works and the 50/50 Sidewalk Programs City Wide providing for the construction and reconstruction of gutters, streets, driveways, spot curbs, sidewalks, alleys, and other improvements; appropriating $5 million from the Street Improvement Fund		(not codified)
69397	2-14-2013	Streets—Authorizing and directing the Department of Streets to enter into a contract with Union Electric, doing business as Ameren Missouri, for street and outdoor lighting services for certain facilities within the City for a period of 10 years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69398	2-14-2013	Board of Election Commissioners—Authorizing the Board of Election Commissioners to expend funds from the Voting System grant for improving and utilizing the Missouri Centralized Voter Registration System		(not codified)
69399	2-14-2013	Excise—Repealing Ordinance 69006 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Eighteenth Ward Liquor District for 3 years		(not codified)
69400	2-14-2013	Intergovernmental Cooperation Agreement—Authorizing execution of an intergovernmental cooperation agreement with St. Louis County and Metropolitan Sewer District for purposes of commissioning a disparity study		(not codified)
69401	2-14-2013	Excise—Ordinance prohibiting the issuance of 3 a.m. closing permits for currently non-licensed 3 a.m. licensed premises within the boundaries of the Twenty-Fourth Ward Liquor Control District for a period of 3 years		(not codified)
69402	2-14-2013	Traffic—Temporarily closing flow of traffic on Vandeventer Spur at Dr. Martin Luther King Drive		(not codified)
69403	2-21-2013	Vacation—Vacating surface rights on Compton Ave. adjacent to CB 2161 beginning at Chouteau and extending southwardly		(not codified)
69404	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2131 California Ave.		(not codified)
69405	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2723 Russell Blvd.		(not codified)
69406	2-21-2013	Zoning—Establishment of the Central West End Form Based District		(not codified)
69407	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 920 South Taylor and 4450 Papin St.		(not codified)
69408	2-21-2013	Vacation—Vacating public surface rights on Virginia Ave. from Caroline St. to Rutger and a portion of Virginia Ave. and Virginia Ave. from Caroline St. southwardly to the east/west alley in CB 2157-N and 2166		(not codified)
69409	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2912 Shenandoah Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69410	2-21-2013	Redevelopment Plan—Amending Ordinance 67013 by modifying the terms of the real estate tax abatement in the Vandeventer/Finney/Washington/Taylor Redevelopment Area		(not codified)
69411	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2910 Indiana Ave.		(not codified)
69412	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3612-14 Hartford St.		(not codified)
69413	2-21-2013	Streets—Designating 1500 block of North Union Blvd as "Bishop Lawrence M. Wooten Blvd."		(not codified)
69414	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4274 Flad Ave.		(not codified)
69415	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4954 Chippewa St.		(not codified)
69416	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2325 Ann Ave.		(not codified)
69417	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4136-38 Flad Ave.		(not codified)
69418	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 4251-53 Russell Blvd.		(not codified)
69419	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2621-23 S. 11th St.		(not codified)
69420	2-21-2013	Historic District—Pertaining to the 41XX-43XX Lindell Historic District; amending Ordinance 59422 and establishing boundaries, regulations and standards for the District		(not codified)
69421	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 3530 Utah		(not codified)
69422	2-21-2013	Redevelopment Plan—Approving a Blight Study and Redevelopment Plan for 2707 Rauschenbach Ave.		(not codified)
69423	2-21-2013	Historic District—Pertaining to the Central West End Historic District, amending Ordinance 56768; establishing regulations, boundaries, and standards for the Central West End Historic District		(not codified)
69424	2-21-2013	Community Improvement District—Establishing the Union Station Community Improvement District, authorizing the execution of a Transportation Project Agreement for the Union Station Transportation District and authorizing other related actions		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69425	2-21-2013	Vacation—Amending Section One of Ordinance 69237 in CB 6190 as bounded by Chippewa, Donovan, and Lansdowne		(not codified)
69426	2-21-2013	Redevelopment Area/Plan/Project—Designating the Carondelet Coke Redevelopment Area; Adopting Tax Increment Financing within the Redevelopment Area; Approving a redevelopment plan and project; establishing the Carondelet Coke Special Allocation Fund		(not codified)
69427	2-21-2013	Public Works Projects—Repealing Ordinance 68412 and enacting a new ordinance pertaining to City public works projects, Tax Increment Financed Projects and St. Louis City Bonded Projects; establishing an apprenticeship training and workforce diversity and city resident programs for City-funded public works contracts, TIF Projects and City Bonded Projects; establishing a Community Jobs Board; containing definitions, fees, waivers, noncompliance and nondiscriminatory provisions, and reporting requirements	1 Rpld	3.110.010—3.110.090
			2—12Added	3.110.010—3.110.110
69428	2-27-2013	Mortgage Foreclosure Intervention—Pertaining to mortgage foreclosure intervention; requiring mediation prior to foreclosure by lender	1—7 Added	15.100.010—15.100.070
69429	4-29-2013	Marijuana Ordinance—Pertaining to the policies for establishing possession and enforcement of marijuana offenses	1—4 Added	11.60.300—11.60.330
69430	4-29-2013	Cooperation Agreement and Reimbursement for Union Station—Authorizing the execution of a cooperation agreement and reimbursement for redevelopment of Union Station		(not codified)
69431	4-29-2013	Supply Bids—Pertaining to supply bids and manner of bidding; local preference allowing local bidder to match lowest bid if the lowest bidder is not local	2	5.58.040
69432	7- 1-2013	Annual Operating Budget Plan for Fiscal Year 2013-2014—Appropriating payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
69433	5-28-2013	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the Restated & Amended Lease Agreement AL-223 between the City and Signature Flight Support Corporation		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69434	5-28-2013	Airport—Authorizing and directing the Director Airports and Comptroller to enter into and execute Lease Agreement AL-222 between the City and MHS Travel & Charter, Inc.		(not codified)
69435	5-30-2013	Tax Revenue Notes—Providing for the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its General Revenue Fund through issuance of Tax and Revenue Anticipation Notes		(not codified)
69436	5-30-2013	The 1600 Block Belt Avenue Residential Parking District - Authorizing the Traffic & Transportation Administrator to designate the location and restrictions for curb parking of residential parking zones within the 1600 Block Belt Avenue Residential Parking District	1—5 Added	17.115.010—17.115.050
69437	5-30-2013	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute an Agreement and Contract of Sale for Exchange of Property between the City and NorthPark Partners LLC		(not codified)
69438	5-30-2013	Airport—Authorizing and directing the Director of Airports and Comptroller to enter into and execute the Local Concept Food & Beverage Concession Agreement AL-231 between the City and OHM Concession Group LLC		(not codified)
69439	6- 5-2013	Vacation—Vacating a portion of Stadium Plaza between Clark and Walnut and a 2 foot strip along the north side of Clark between Stadium Plaza and Broadway		(not codified)
69440	6- 5-2013	Vacation—Vacating 20 foot wide north/south alley in CB 22 bounded by First, Carr, Second and Biddle		(not codified)
69441	6- 5-2013	Vacation—Vacating Papin from Grand eastwardly 282 feet to a point and adjacent to CB 2212 and 2213		(not codified)
69442	6- 5-2013	Vacation—Vacating 95.12 feet of the 15 foot wide east/west alley in CB 2158 as bounded by Rutger, Compton, Caroline and Virginia		(not codified)
69443	6-11-2013	Zoning—District map change from "A" and "J" to the "H" District in CB 4620 (6726, 6728 & 6730 Garner, 6691 Manchester and 6725-27 Waldemar)		(not codified)
69444	6-11-2013	Zoning—District map change from "B" and "J" to the "J" District only in CB 3965, (917, 919, 921, 923 & 925 Kentucky Avenue and 4146, 4228, 4230 & 4232 Papin Street) so as to include parcels of land in CB 3965		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69445	6-11-2013	Zoning—District map change from "F" to the "B" District in CB 3389 (1520 & 1524 E. College) in CB 3389		(not codified)
69446	6-11-2013	Streets—Establishing a four way stop site at the intersection of Ivanhoe Avenue and Hancock Avenue		(not codified)
69447	6-19-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2301 Arsenal Street Redevelopment Area		(not codified)
69448	6-19-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1516-30 N. Jefferson Redevelopment Area		(not codified)
69449	6-19-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 5161, 5164, and 5166-68 Dr. Martin Luther King Drive		(not codified)
69450	6-19-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Shepard Apartments Redevelopment Area		(not codified)
69451	6-19-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the College Hill Nazareth Homes Redevelopment Area		(not codified)
69452	6-19-2013	Redevelopment Plan/Area/Project—Repealing Ordinance 69068 and adopting a redevelopment plan, project and area and authorizing the execution of a redevelopment agreement between the City and Lancaster Ventures LTD		(not codified)
69453	6-19-2013	Vacation—Vacating a portion of Mallinckrodt Street to an area abutting CB 1743 and 1748		(not codified)
69454	6-25-2013	Intergovernmental Agreement—Intergovernmental Cooperation Agreement between SLCEC and SLCD		(not codified)
69455	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3939 Botanical Ave. Redevelopment Area		(not codified)
69456	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4014 Russell Blvd. Redevelopment Area		(not codified)
69457	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4217 Russell Blvd. Redevelopment Area		(not codified)
69458	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2720-22 S. Jefferson Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69459	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3016 McNair Ave. Redevelopment Area		(not codified)
69460	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3931 Gustine Ave.		(not codified)
69461	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 5429-31 Chippewa St. Redevelopment Area		(not codified)
69462	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1425 N. Vandeventer Ave.		(not codified)
69463	6-25-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for 2632 Russell Blvd.		(not codified)
69464	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2309 S. Jefferson Ave.		(not codified)
69465	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3460 Oak Hill Redevelopment Area		(not codified)
69466	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2648 Cherokee St. Redevelopment Area		(not codified)
69467	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for Carondelet Scattered Sites III Redevelopment Area		(not codified)
69468	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4342 Hunt Ave. Redevelopment Area		(not codified)
69469	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4350 Chouteau Ave. Redevelopment Area		(not codified)
69470	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4216-22 Gibson Ave. Redevelopment Area		(not codified)
69471	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2649 Russell Blvd.		(not codified)
69472	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3619-25 Grandel Square Redevelopment Area		(not codified)
69473	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 800-802-804 Ann Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69474	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1301 Wharf St.		(not codified)
69475	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 420 Fassen St. Redevelopment Area		(not codified)
69476	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4161-69 Olive Street		(not codified)
69477	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3802 Juniata Street Redevelopment Area		(not codified)
69478	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3847 Connecticut St. Redevelopment Area		(not codified)
69479	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3457-59 Wyoming St. Redevelopment Area		(not codified)
69480	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4122 Botanical Ave.		(not codified)
69481	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2637 Allen Ave. Redevelopment Area		(not codified)
69482	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 5517-19 Dugan Ave. Redevelopment Area		(not codified)
69483	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1924 Edwards St. Redevelopment Area		(not codified)
69484	6-25-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1911 Congress St. Redevelopment Area		(not codified)
69485	6-25-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for 2109 Arsenal St. Redevelopment Area		(not codified)
69486	6-25-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for Forest Park Southeast Scattered Sites I Redevelopment Area		(not codified)
69487	6-25-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for 4180 Manchester Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69488	7- 1-2013	Budget—Authorizing a supplemental appropriation of Two Million dollars; Amending Ordinance 69154, the Budget for FY 2012-2013 and setting apart projected excess general fund revenues to address certain expenditures in the General Fund for the current fiscal year		(not codified)
69489	7- 2-2013	Police Department—Pursuant to the terms and provisions of Section 84.344.4 of the Revised Missouri Statutes, the City hereby accepts responsibility, ownership, and liability as successor-in-interest for contractual obligations, indebtedness, and other lawful obligations of the Board of Police Commissioners of the Police Department, effective September 1, 2013 or on such later date as may be established in subsequent City legislation		(not codified)
69490	7- 2-2013	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of not to exceed $2,850,000 plus issuance costs principal amount of tax increment revenue notes for Northeast Hampton Berthold Redevelopment Project		(not codified)
69491	7-10-2013	Zoning—Change of zoning from "A" to "F" in CB 4076 (5220 & 5222 Shaw) in CB 4076		(not codified)
69492	7-10-2013	Streets—Establishing a three way stop site at the intersection of Sidney Street and Lemp Avenue by regulating all east-west traffic traveling on Sidney Street		(not codified)
69493	7-10-2013	Streets—Establishing a three way stop site at the intersection of Eichelberger Street and Alfred Avenue by regulating all east-west traffic		(not codified)
69494	7-10-2013	Streets—Establishing a three way stop site at the intersection of Walsh and Newport Ave.		(not codified)
69495	7-10-2013	Public Works—Establishing a public works and improvement project, the "Off System Bridge Maintenance Project—Phase Two" for the design and construction of various preventive maintenance procedures on eight (8) "Off System" bridges		(not codified)
69496	7-10-2013	Parking Commission—Appropriation for payment of the operating expenses, capital equipment and improvement expenses including lease purchase agreements involving the Parking Division assets and debt service expenses for the FY 7-1-13 and ending 6-30-14, amounting to $14,447,715		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69497	7-10-2013	Airport—Authorizing and directing the Mayor and Comptroller to accept and execute the First Amendment to Lease Agreement with Jet Linx St. Louis LLC, Lease Agreement AL-222		(not codified)
69498	7-10-2013	Airport—Authorizing and directing the Mayor and Comptroller to accept and execute a Financial Assistance Agreement (Grant Agreement No. 2013028) offered by the St. Louis-Jefferson Solid Waste Management District		(not codified)
69499	7-10-2013	Streets—Establishing a stop site at Meramec Street and South 38th Street		(not codified)
69500	7-10-2013	Streets—Establishing a stop site at North Boyle and McPherson Avenue		(not codified)
69501	7-10-2013	Streets—Establishing a stop site at on South Boyle Avenue and Duncan Ave		(not codified)
69502	7-10-2013	Bonds—City, acting through the Treasurer, to issue bonds in the amount not to exceed $2,000,000 in order to pay and reimburse the City's Parking System for costs associated with the acquisition and demolition of Cupples 7 building		(not codified)
69503	7-11-2013	Traffic—Repealing Ordinance 69092 pertaining to commercial semi-trailer trucks traveling on Union Blvd from the north on I-70 during the certain hours	1	17.68.010
69504	7-11-2013	Bonds—Authorizing and directing the issuance and sale of Water Revenue Bonds in an amount not to exceed $10,000,000 to pay for costs associated with the extension, improvement, purchase, acquisition, construction and enlargement of the City's Waterworks System		(not codified)
69505	7-11-2013	Recorder of Deeds—Recorder of Deeds Office is authorized to receive payment by credit card or debit card for fees imposed by law and to recover all administrative costs connected to these transactions and convenience fees imposed by the credit card service under contract to process such payments	1 Added	3.20.070
69506	7-11-2013	Vacation—Vacation of a portion of Cairns Pl. from Clayton Ave. and a portion of east/west alley in CB 4591-W from Carins to a point bounded by Oakview Place, Berthold, Hampton, Clayton, and Oakland		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69507	7-11-2013	Vacation—Vacation of a portion of the north/south alley in CB 3954 as bounded by Clayton Ave., Vandeventer Ave., Sarpy Ave. and Sarah Ave.		(not codified)
69508	7-11-2013	Vacation—Vacation of a portion of the east-west alley in CB 1039 as bounded by Samuel Shepard Dr., Compton, Washington Ave., Leonard Ave.		(not codified)
69509	7-11-2013	Redevelopment Agreement—Authorizing the execution of the redevelopment agreement between the City and City Walk on Euclid LLC and designating City Walk on Euclid LLC for the redevelopment of 100 N. Euclid Redevelopment Area		(not codified)
69510	7-11-2013	Redevelopment Area/Plan/Project—Designating redevelopment area 100 N. Euclid Redevelopment Area for TIF; approving a redevelopment plan and project; adopting TIF for the area and establishing the 100 N. Euclid Special Allocation Fund		(not codified)
69511	7-11-2013	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of TIF Notes not to exceed $10,000,000 plus issuance costs for 100 N. Euclid Redevelopment Project		(not codified)
69512	7-11-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2803 Hadley St. Redevelopment Area		(not codified)
69513	7-15-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 901-23 Locust St., 416 N. 9th St., and 421 N. 8th St. Redevelopment Area		(not codified)
69514	7-16-2013	Public Works—Establishing a multi-phased public works and improvement project and improvement project, designated as the Vandeventer Transportation Corridor Project, for the design and construction of various roadway infrastructure and safety improvements in accordance with the City's "Complete Streets Policy"		(not codified)
69515	7-24-2013	Easement—Authorizing and directing the Mayor and Comptroller to execute upon receipt of consideration, 2 permanent and irrevocable easements with MoDOT the right and easement to construct and maintain a lighting system for Highway 64/40		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69516	7-24-2013	MoDOT Agreement—Authorizing and directing the Board of Public Service to enter into an Agreement with Missouri Highways and Transportation Commission to provide various roadway infrastructure improvements and reconstruction for the Park over the Highway Project (Arch) and the 3rd Street/Washington Ave. Ramp Reversal Project		(not codified)
69517	7-24-2013	Prophylactics—Repealing Ordinance 40429 relating to the regulation and restriction of prophylactics	1 Rpld	11.54.010—11.54.030
69518	7-24-2013	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute, upon receipt of $12,000.00 a quit claim deed to K.A.M. Investments LLC, located in CB 4627 and also known by the address of 6800R Manchester		(not codified)
69519	7-24-2013	Redevelopment Plan—Amending Ordinance 64728 by modifying the terms of the real estate tax abatement in the Washington, Vandeventer, Enright, Pendleton Redevelopment Area		(not codified)
69520	7-24-2013	Redevelopment Agreement—Authorizing the execution of the redevelopment agreement with Carondelet Broadway TIF for the redevelopment of the Carondelet Coke Redevelopment Area and designating Carondelet Broadway TIF as the redeveloper		(not codified)
69521	7-24-2013	Tax Increment Revenue Notes—Authorizing and Directing the issuance and delivery of notes not to exceed $7,000,000 plus issuance costs for the Carondelet Coke Redevelopment Project		(not codified)
69522	7-24-2013	Development Agreement—Authorizing the City to enter into a Development Agreement with Anders Minkler Huber & Helm LLP to issue Taxable Industrial Revenue Bonds in an amount not to exceed $2,300,000 for the purpose of acquiring certain equipment for an industrial development project in the City; authorizing the Mayor and Comptroller to enter into leases for the project and authorizing and directing the taking of other actions and approvals execution of other documents as are necessary		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69523	7-24-2013	Redevelopment Plan—Authorizing and approving an amendment to the St. Louis Innovation District Tax Increment Redevelopment Plan; adopting and approving a redevelopment project for redevelopment project 1A(II); adopting tax increment financing within the redevelopment project area 1A(II); establishing sub-account of the St. Louis Innovation District Special Allocation Fund		(not codified)
69524	7-24-2013	Redevelopment Agreement—Authorizing the execution of a First Amendment to Redevelopment Agreement between the City and St. Louis Innovation District		(not codified)
69525	7-24-2013	Tax Increment Revenue Notes—Authorizing the issuance and delivery of tax revenue notes in amount not to exceed $167,000,000 plus costs of issuance for certain reimbursable redevelopment project costs associated with the St. Louis Innovation Redevelopment Area; authorizing and directing the Mayor and the Comptroller to execute and deliver the trust indenture in connection with the issuance of the notes; designating the trustee of the notes		(not codified)
69526	7-24-2013	Vacation—Repealing Ordinance 69284, which provided for the unconditional vacation and abolition of a public right-of-way in a portion of the east/west alley in CB 4380-E as bounded by Penrose Park (CB 4379), Euclid, Penrose St., Aubert Ave.		(not codified)
69527	7-24-2013	Redevelopment Agreement—Amending Ordinance No. 65857, pertaining to the redevelopment agreement between the City and Grand Center Inc.; amending to authorize an application for abatement for 3207 Washington Project and a fourth supplemental trust indenture		(not codified)
69528	7-24-2013	Taxes—Directing the Treasurer to deposit funds received into the City Public Transit Sales Tax Fund—Account One and appropriating $10,032,500 for the Bi-State Development Agency		(not codified)
69529	7-24-2013	Bonds—Authorizing and directing the City, through the Treasurer, to issue a subordinated parking revenue bond in the amount not to exceed $1,500,000		(not codified)
69530	7-24-2013	Transportation Trust Fund—Appropriating the sum of $20,065,000 out of the Transportation Trust Fund to the Bi-State Development Agency for transportation purposes		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69531	7-24-2013	Parking Commission—Authorizing and directing the City, acting through the Treasurer, to issue a subordinated parking revenue bond not to exceed $1,5000,000		(not codified)
69532	7-24-2013	Easement—Authorizing and directing the Mayor and Comptroller to execute upon receipt of consideration of One Dollar ($1.00) a permanent Easement that shall give, grant, extend and confer the Procter & Gamble Manufacturing Company, the right to build and maintain pipelines and incidental fixtures for the transportation of water		(not codified)
69533	7-24-2013	Grant—Authorizing and directing the Mayor to enter into agreements with the National Association of County and City Health Officials for the 2013 Community Guide Capacity Building Demonstration Program; authorizing to expend any funds received by said agreement		(not codified)
69534	7-24-2013	Grant—Authorizing and directing the Mayor to enter into agreements with the Missouri Foundation for Health and any other agency for the "Missouri Foundation for Health Basic Support-Cycle III" Program; authorizing expenditure of grant funds		(not codified)
69535	7-24-2013	Zoning—Change from "E" and "J" to "H" in CB 3890 (4501, 4529, 4533, 4537, 4539, & 4541 Parkview Place) & 4781.05 (4545 & 4565 Children's Place and 4528, 4530-56 & 4576 Parkview Place)		(not codified)
69536	9-15-2013	Conflicts of Interest—Ordinance adopted pursuant to Section 105.483(11) RSMo., reaffirming provisions of Ordinances 62391, 66691, 67617, 68409, and 68934; establishing a policy for disclosure of conflicts of interest and substantial interests for certain municipal officials		(not codified)
69537	9-15-2013	Employees Retirement System—Repealing Section One of Ordinance 67963 and enacting new provisions relating to the same subject matter; authorizing and directing the Board of Trustees to seek a "Qualified Status" determination letter from the IRS and to adopted regulations thereto	1	4.16.030 F.
69538	10-11-2013	Streets—Repealing Ordinance 69167 and Section Twenty-Four and Section Twenty-Five of Ordinance 68604, codified as Chapter 20.55 and 20.56 of the Code	1 Rpld	20.55.010—20.55.090
			Rpld	20.56.017

Ordinance Number	Date	Description	Section	Section this Code
69539	10-11-2013	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute Space Permit AL-208 with The Magic House		(not codified)
69540	10-11-2013	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the "First Amendment to Operating Agreement AL-472" with Concourse Communications St. Louis LLC		(not codified)
69541	10-11-2013	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute Vending Concession Agreement AL-245 with AVendCo LLC		(not codified)
69542	10-11-2013	Port Authority—Directing the Mayor and Comptroller to enter into the Operations and Maintenance Agreement with Metropolitan Park and Recreation District d/b/a The Great Rivers Greenway District and the Port Authority and City Arch River 2015 Foundation		(not codified)
69543	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5314 Wilson Ave. Redevelopment Area		(not codified)
69544	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4026-28 Detonty St. Redevelopment Area		(not codified)
69545	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3625 Russell Blvd. Redevelopment Area		(not codified)
69546	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2201 Missouri Ave. Redevelopment Area		(not codified)
69547	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3915 Utah St. Redevelopment Area		(not codified)
69548	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4155 Shenandoah Ave. Redevelopment Area		(not codified)
69549	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4045-47 Botanical Ave. Redevelopment Area		(not codified)
69550	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4031 Shenandoah Ave. Redevelopment Area		(not codified)
69551	10-18-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for the 2809 McNair Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69552	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2526 California Redevelopment Area		(not codified)
69553	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4903 Lansdowne Ave. Redevelopment Area		(not codified)
69554	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5546 Dugan Ave. Redevelopment Area		(not codified)
69555	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2107 Lilly Ave. Redevelopment Area		(not codified)
69556	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2313 Edwards St. Redevelopment Area		(not codified)
69557	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3727 McDonald Ave. Redevelopment Area		(not codified)
69558	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3731 McDonald Ave. Redevelopment Area		(not codified)
69559	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3801 McDonald Ave. Redevelopment Area		(not codified)
69560	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3806 Wyoming St. Redevelopment Area		(not codified)
69561	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4147 Wyoming Redevelopment Area		(not codified)
69562	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3900 Utah St. Redevelopment Area		(not codified)
69563	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3900 Parker Ave. Redevelopment Area		(not codified)
69564	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3223 Magnolia Ave. Redevelopment Area		(not codified)
69565	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2927 Virginia Ave. Redevelopment Area		(not codified)
69566	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3321 Shenandoah Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69567	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2144 McCausland Ave. Redevelopment Area		(not codified)
69568	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 4006 Shenandoah Ave. Redevelopment Area		(not codified)
69569	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4920 Botanical Ave. Redevelopment Area		(not codified)
69570	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4022 Castleman Ave. Redevelopment Area		(not codified)
69571	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3828 Flad Ave. Redevelopment Area		(not codified)
69572	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4024 Shaw Blvd. Redevelopment Area		(not codified)
69573	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3525 Wyoming St. Redevelopment Area		(not codified)
69574	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan 2232 Thurman Ave.		(not codified)
69575	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3307 Missouri Ave. Redevelopment Area		(not codified)
69576	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3007 Salena St. Redevelopment Area		(not codified)
69577	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3001-03 McNair Ave. Redevelopment Area		(not codified)
69578	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2627 S. 11th Street Redevelopment Area		(not codified)
69579	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4237 Maryland Ave. Redevelopment Area		(not codified)
69580	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for Hyde Park Scattered Sites V Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69581	10-18-2013	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute a Quit Claim Deed for consideration in the sum of $550.00 for City owned property located in CB 3736 and also known as 1215 Red Fox Lane to Caressa Williams		(not codified)
69582	10-18-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1600-1761 and 1601-07 N. Broadway Redevelopment Area		(not codified)
69583	10-21-2013	Budget—Amendment to the Annual Operating Budget, Ordinance 69432, pertaining to municipal general revenue appropriations for services to be consolidated as a result of local control of the Police Department		(not codified)
69584	10-22-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 623-25 Holly Hills Ave. Redevelopment Area		(not codified)
69585	10-22-2013	Grant—Authorizing and directing the Director of Human Services to accept a Grant Award from the Missouri Alliance of Area Agencies on Aging in the amount of $64,936.00 and to expend those funds for the Navigator Project		(not codified)
69586	10-29-2013	Redevelopment Plan—Adopting and approving an amendment to the Northside Regeneration Tax Increment Redevelopment Plan; approving projects for Project Area C and D; adopting TIF with respect to Project Area C and Project D		(not codified)
69587	10-29-2013	Redevelopment Agreement—Authorizing the execution of an amended and restated redevelopment agreement with Northside Regeneration LLC		(not codified)
69588	11- 1-2013	Historic Preservation—Amending the CWE Certified Local Historic District's boundaries		(not codified)
69589	11- 1-2013	Excise—Repealing Ordinance 69295 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Nineteenth Ward Liquor Control District		(not codified)
69590	11- 1-2013	Traffic—Establishing a stop sign at N. Sarah Street at Finney Ave.		(not codified)
69591	11- 1-2013	Traffic—Establishing a stop sign for all northbound and southbound traffic traveling on N. Sarah Street at C.D. Banks Avenue		(not codified)
69592	11- 1-2013	Traffic—Establishing a stop sign for all northbound and southbound traffic traveling on Macklind Ave. at Finkman Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69593	11- 1-2013	Traffic—Establishing a three-way stop interesting by establishing stop sites for all eastbound and westbound traffic traveling on Walsh Street at Fendler Place and stopping southbound traffic traveling on Fendler Place at Walsh Street		(not codified)
69594	11- 1-2013	Excise—Repealing Ordinance 68785 and enacting a new ordinance prohibiting the issuance of any package liquor or drink liquor licenses within the Twenty-Second Ward Liquor Control District		(not codified)
69595	11- 1-2013	Traffic—Establishing a stop site at Tower Grove and Swan		(not codified)
69596	11- 1-2013	Grant—Authorizing and directing the Mayor and Comptroller to apply for grants and to enter into agreements with the National Association of County and City Health Officials and any other agency for the City of St. Louis Department of Health Medical Reserve Corps; to expend funds received by said grants		(not codified)
69597	11- 1-2013	Excise—Repealing Ordinance 69002 and prohibiting issuance of any package or drink liquor license in the Tenth Ward Liquor Control District		(not codified)
69598	11- 1-2013	Zoning—Change from "D" and "H" to "H" District only in CB 1463 (3150-56 S. Grand & 3515 Juniata)		(not codified)
69599	11- 1-2013	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the "Supplemental Agreement to Airport Aid Agreement for Air Service Promotion" with the Missouri Highways and Transportation Commission		(not codified)
69600	11- 1-2013	Fire Code—Adopting the International Fire Code/2009 Edition with amendments	Rpld	25.06.010—25.06.180
			1, 2 Added	25.06.010, 25.06.020
			3 Added	25.06.030—25.06.250
69601	11- 1-2013	Public Works—Establishing a public works and improvement project for South Broadway Streetscape Project-Phase 2; authorizing and directing the Board of Public Service to let contracts and provide design, construction, materials and equipment for the South Broadway Streetscape Project-Phase 2		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69602	11- 1-2013	Public Works—Establishing a public works and improvement project for Newstead Avenue Improvements Project; authorizing and directing the Board of Public Service to let contracts and provide design, construction, materials and equipment for the Newstead Avenue Improvements Project		(not codified)
69603	11- 1-2013	Public Works—Establishing a public works and improvement project for the North Broadway Improvements Project; authorizing and directing the Board of Public Service to let contracts and provide design, construction, materials and equipment for the North Broadway Improvements Project		(not codified)
69604	11- 1-2013	Public Works—Establishing a public works and improvement project for the Traffic Management Enhancements -Phase 2; authorizing and directing the Board of Public Service to let contracts and provide design, construction, materials and equipment for the Traffic Management Enhancements—Phase 2		(not codified)
69605	11- 6-2013	Community Improvement District—Establishing the Hampton Berthold Community Improvement District		(not codified)
69606	11- 6-2013	Streets—Honorarily designating 4400 block of Cook Avenue as "Sylvia E. Miller Way"		(not codified)
69607	11- 6-2013	Official Flower—Designating the Iris as the official flower for the City of St. Louis	1 Added	1.18.010
69608	11- 6-2013	Community Improvement District—Establishing the Carondelet Commons Community Improvement District		(not codified)
69609	11- 6-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 1008-10 Locust Street		(not codified)
69610	11- 6-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Arlington Grove Phase II Redevelopment Area		(not codified)
69611	11- 6-2013	Vacation—Vacating a portion of CB 1884 as bounded by CB 1885 on the north, Bacon Street on the east, Cass Avenue and on the South, Grand Blvd. on the west		(not codified)
69612	11- 6-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1900-1928 Pine Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69613	11- 6-2013	Redevelopment Plan—Amending Ordinance 67840 by modifying the land use and terms of the real estate tax abatement in the 2200 Locust St. Redevelopment Area		(not codified)
69614	11- 6-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1900 Market St. Development Area		(not codified)
69615	11- 6-2013	Redevelopment Plan—Amending Ordinance 68550 by modifying the terms of the real estate tax abatement in the 800 Olive Redevelopment Area		(not codified)
69616	11-15-2013	Grant Block—Authorizing the Mayor to submit a 2014 Annual Plan to HUD to apply for funding under CDBG, HOME, ESG, HOPWA entitlement programs and authorizing and directing the Mayor and Comptroller to enter into and execute agreements for such funds; appropriating $16,596,881, $2,260,801, $1,157,942, and $1,250,073 from grant funds for various programs		(not codified)
69617	11-22-2013	Civil Service Plan—Amending Civil Service Plan, under Ordinance 69189, by repealing Section One (a) and Two (c)	1	4.10.010 A.
			2	4.10.020
69618	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5774 DeGiverville Ave. Redevelopment Area		(not codified)
69619	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2406 McNair Street Redevelopment Area		(not codified)
69620	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2404 McNair Street Redevelopment Area		(not codified)
69621	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2048 Victor Street Redevelopment Area		(not codified)
69622	12- 4-2013	Redevelopment Plan—Approving a Blighting study and redevelopment plan for the 2224 Indiana Ave. Redevelopment Area		(not codified)
69623	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4215 Connecticut St. Redevelopment Area		(not codified)
69624	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6905 Wise Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69625	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2905-2937 Olive Street Redevelopment Area		(not codified)
69626	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2728 Cherokee St.		(not codified)
69627	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1214 Boyle Ave. Redevelopment Area		(not codified)
69628	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4318 Virginia Ave. Redevelopment Area		(not codified)
69629	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 301 S. Ewing Ave. Redevelopment Area		(not codified)
69630	12- 4-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 7716 Vermont Ave. Redevelopment Area		(not codified)
69631	12-16-2013	2200 Thurman Ave. Residential Parking District—Designating location and restrictions for curb parking of residential parking zones within the 2200 Thurman Ave. Residential Parking District	1—5 Added	17.120.010—17.120.050
69632	12-16-2013	Airport—Establishing and authorizing a public works project for the Lambert Airport consisting of capital improvements for the terminal complexes, concourses, runways, taxiways, aprons, and ramps and associated buildings and facilities		(not codified)
69633	12-16-2013	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the First Right of Refusal Agreement No. AL-319 with Brownsville International Air Cargo, Inc.		(not codified)
69634	12-16-2013	Zoning—Change in zone from "A" and "F" to "F" District in CB 5100 (7207 Piccadilly)		(not codified)
69635	12-16-2013	Zoning—Change in zone from "B" to "J" in CB 1768 (3652-60 Marine and 111 Winnebago)		(not codified)
69636	12-16-2013	4200—4400 North Euclid Avenue Residential Parking District—Establishing district and authorizing the Traffic Administrator to designate the location and restrictions for curb parking within the District	1—5 Added	17.125.010—17.125.050

Ordinance Number	Date	Description	Section	Section this Code
69637	12-16-2013	5000 Maffitt Avenue Residential Parking District—Establishing district and authorizing the Traffic Administrator to designate the location and restrictions for curb parking within the District	1—5 Added	17.130.010—17.130.050
69638	12-17-2013	Bonds—Transfer of real property from the Board of Police Commissioners to the City as a result of the merger of the Police Department with the City and amending certain bond documents relating to outstanding Police Capital Improvement Sales Tax Leasehold Revenue Bonds; authorizing and directing Mayor and Comptroller to execute First Supplemental Base Lease, Second Supplemental Lease Purchase Agreement, the Second Supplemental Deed of Trust and Security Agreement, Second Supplemental Indenture of Trust and First Supplemental Communications Property Base Lease		(not codified)
69639	12-30-2013	Streets—Amending Ordinance 65601, relating to street vendors, by deleting paragraph (e) of section Four of such Ordinance	1 Rpld	8.108A.030 E.
69640	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4548 Dr. Martin Luther King Drive		(not codified)
69641	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1171-1269 Hodiamont Ave. Redevelopment Area		(not codified)
69642	12-30-2013	Vacation—Vacating a portion of Pattison east of Hereford		(not codified)
69643	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 111 Winnebago St.		(not codified)
69644	12-30-2013	Zoning—Establishing the Marine Winnebago Kosciusko Warehouse Area Special Use District and enacting use regulations for said area		(not codified)
69645	12-30-2013	Redevelopment Plan/Area/Project—Designating 706 Market as a redevelopment area; approving a redevelopment plan and project; adopting tax increment financing within the area and establishing the 706 Market Special Allocation Fund		(not codified)
69646	12-30-2013	Redevelopment Agreement—Authorizing the execution of a redevelopment agreement with Market TIF, Inc.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69647	12-30-2013	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of not to exceed $7,000,000 plus issuance cost of tax increment revenue notes for the 706 Market Redevelopment Project		(not codified)
69648	12-30-2013	Redevelopment Plan—Approving an Amendment to the Taylor Carrie TIF Redevelopment Plan and removing certain property from the Redevelopment Area		(not codified)
69649	12-30-2013	Redevelopment Plan/Area/Project—Designating redevelopment area known as the Carrie Ave. Redevelopment Area; approving a redevelopment plan and project, adopting tax increment financing within the area and establishing the Carrier Ave. Special Allocation Fund		(not codified)
69650	12-30-2013	Redevelopment Agreement—Authorizing the execution of redevelopment agreements with Carrie TIF, Inc.		(not codified)
69651	12-30-2013	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of TIF Notes not to exceed $2,100,000 plus issuance cost		(not codified)
69652	12-30-2013	Tax Increment Financing—Determination that Tax Increment Financing Plans, as listed in Exhibit, are making satisfactory progress under the proposed time schedule for such projects		(not codified)
69653	12-30-2013	Redevelopment Plan/Area/Project—Terminating/dissolving the special allocation funds for the Laclede Power House Redevelopment Area and 1900 Washington Redevelopment Area and terminating the designation of certain respective portions of the City relating to those areas		(not codified)
69654	12-30-2013	Redevelopment Plan/Area/Project—Terminating/dissolving the special allocation funds for the 4249 Michigan Redevelopment Area, South Carondelet District #3 Redevelopment Area, 503 N. Tucker Redevelopment Area, 3150 S. Grand Redevelopment Area, and Skywheel St. Louis Redevelopment Area, and terminating the designation of respective portions		(not codified)
69655	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4367 Gibson Redevelopment Area		(not codified)
69656	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 301 N. Memorial Drive		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69657	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2249 Indiana Ave. and 2245 Shenandoah Ave. Redevelopment Area		(not codified)
69658	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2417 S. 9th St. Redevelopment Area		(not codified)
69659	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4206 Shaw Blvd. Redevelopment Area		(not codified)
69660	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2622-26 Kingshighway Blvd. Redevelopment Area		(not codified)
69661	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 2051-55 Maury Ave. -4561-65 Flad Ave. Redevelopment Area		(not codified)
69662	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3306 Illinois Ave. Redevelopment Area		(not codified)
69663	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for 2137 Nebraska Ave. Redevelopment Area		(not codified)
69664	12-30-2013	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4272 W. St. Ferdinand Ave. Redevelopment Area		(not codified)
69665	1-14-2014	Bonds—Authorizing and directing the St. Louis Municipal Finance Corporation to issue and sell the Corporation's City Parks Leasehold Improvement Dedicated Revenue Bonds in an amount not to exceed $26,000,000 in order to fund City Parks improvements		(not codified)
69666	1-30-2014	Community Improvement District—Approving an amendment to the boundaries of the Orpheum Theatre Community Improvement District by removing property located at 421 8th Street		(not codified)
69667	2- 4-2014	Preservation—Designating Compton Hill Missionary Baptist Church, at 3141 LaSalle Street, as a St. Louis Landmark, containing definitions and design standards		(not codified)
69668	2- 4-2014	Zoning—Zoning change from "J" to the "G" District in CB 3956 (addresses of 3970, 3972R, 3974 & 3978 Gratiot Street and 823 & 827 Vandeventer		(not codified)
69669	2- 4-2014	Zoning—Zoning change from "B" and "F" to "F" in CB 1998.13 (2841-51 Gravois)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69670	2- 4-2014	Grant—Authorizing and directing the Director of Public Safety, on behalf of the Mayor and City, to enter into and execute Grant Agreement with the U.S. Department of Justice, Bureau of Justice Assistance to fund the 2013 Justice Assistance Grant Program		(not codified)
69671	2-12-2014	Traffic—Establishing a stop site for all eastbound and westbound traffic traveling on Maurice Avenue at Leola Ave.		(not codified)
69672	2-12-2014	Airport—Authorizing a transfer of $13,727,769 of excess moneys from the Debt Service Stabilization Fund to the Revenue Fund to be used to mitigate rates on an annual basis during the term of the Airport Use and Lease Agreement		(not codified)
69673	2-12-2014	Downtown Convention Center Hotel—Authorizing and directing the Mayor to enter into and execute one or more Amended and Restated Redevelopment Agreements with respect to the Downtown Convention Center Hotel; terminating the St. Louis Convention Hotel Community Improvement District; approving a petition for the establishment of the St. Louis Convention Center Hotel 2 Community Improvement District and authorizing an amendment to the Intergovernmental Cooperation and Transportation Project Agreement		(not codified)
69674	2-13-2014	Charter Amendment—Submitting to the qualified voters a proposed amendment to the Charter by adding paragraph (e) to Section 4 of Article XVIII relating to the granting of a veterans' preference to applicants who successfully pass examination for civil service positions	1 Added	Charter Art. XVIII, § 4(e)
69675	2-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 6301 Manchester Ave. Redevelopment Area		(not codified)
69676	2-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Dolman St. Scattered Sites Redevelopment Area		(not codified)
69677	2-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4318 Frieda Ave. Redevelopment Area		(not codified)
69678	2-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for 3022 Salena St. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69679	2-13-2014	Redevelopment Agreement—Amending Ordinance Nos. 65978 and 67242; authorizing the execution of the Second Amendment to the Redevelopment Agreement with City Hospital Development, LLC		(not codified)
69680	2-13-2014	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of TIF Notes not to exceed $4,000,000 plus issuance		(not codified)
69681	2-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4257 W. Martin Luther King Drive Redevelopment Area		(not codified)
69682	2-19-2014	City Hall Restoration Fund—Authorizing the establishment of "The City Hall Restoration Fund" to help provide needed repairs and restoration to City Hall at 1200 Market Street; directing the Collector of Revenue to transfer money designated on various bills for which the person designated the excess funds shall be used for the City Hall Restoration Fund		(not codified)
69683	2-19-2014	Intergovernmental Cooperation Agreement—Authorizing the Treasurer to enter into the amended and restated Missouri Securities Investment Program Intergovernmental Cooperation Agreement		(not codified)
69684	2-19-2014	Streets—Honorarily designating Pine Street between 4th and Broadway (FH logo then) as "Bill Anderson Way"		(not codified)
69685	2-19-2014	Vacation—Vacating a portion of the north/south alley in CB 603 as bounded by Mullanphy, Ninth, Cass, Tenth		(not codified)
69686	2-19-2014	Vacation -Vacating a portion of Dillon from Carroll to a point previously vacated in CB 1250 and 1251		(not codified)
69687	2-19-2014	Vacation—Vacating Duncan from Vandeventer to a point and the 15 foot wide east/west alley in CB 3918-W as bounded by Forest Park Ave., Vandeventer, Duncan, Sarah		(not codified)
69688	2-19-2014	Vacation—Vacating a portion of east/west alley in CB 2102 as bounded by Arsenal, Grand, Hartford and Spring		(not codified)
69689	3- 4-2014	Zoning—Change of zoning in the Central West End Form-Based District Map from "NCT1" to "NGT3" in CB 3920 (4054-66 West Pine Blvd.); and to further change the overall boundaries of the "NCT1" Zone and the "NGT3" Zone as detailed on the map		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69690	3- 4-2014	Easement—Authorizing and directing the Mayor and Comptroller to execute for consideration a permanent, irrevocable Easement which will grant to the Metropolitan Sewer District the exclusive right to build and maintain a sewer or sewers including storm water improvements on the ground described in CB 9115		(not codified)
69691	3- 4-2014	Bonds—Authorizing and directing the Board of Public Service to let contracts, purchase materials, equipment and supplies, employ labor, hire consultants, pay fees, salaries and wages to provide for the Waterworks System in the City of St. Louis Water Division by projects approved by the Water Revenue Bonds (State of Missouri-Direct Loan Program); appropriating $8,000,000 from the Water Works Contingent Account, which costs will be reimbursed to the Water Works Contingent Account		(not codified)
69692	3- 5-2014	CREA—Amending and restating Sections Four and Ten (c) of Ordinance 67119 relating to eliminating discrimination	1	3.44.030
			2	3.44.090 C.
69693	3-12-2014	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the First Amendment to Fuel System Lease and Use Agreement with STL Fuel Company LLC		(not codified)
69694	3-12-2014	Airport—Authorizing and directing the Director of Airports to enter into and execute the "Agreement and Contract of Sale" with Memorial Tabernacle Baptist Church To Preserve the Heritage and Legacy of the Family of Harrold, located within Kinloch, Missouri		(not codified)
69695	3-12-2014	Airport—Authorizing and directing the Mayor and Comptroller to enter into and execute the Airport Aid Agreement with the Missouri Highways and Transportation Commission for the design of a new west cargo ramp at the Airport in the amount of $365,068		(not codified)
69696	3-12-2014	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the Ground Transportation Concession Agreement AL-322 between the City and Best Transportation, Inc.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69697	3-12-2014	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute the "Second Amendment to East Terminal Agency Agreement" to the East Terminal Agreement AL-446		(not codified)
69698	3-13-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4010-66 West Pine Blvd./26-28 N. Sarah Ave./4001-13 Laclede Ave. Redevelopment Area		(not codified)
69699	3-13-2014	Community Improvement District—Establishing the Magnolia Community Improvement District; Authorizing the Execution of a Transportation Project Agreement with the City and the District		(not codified)
69700	3-19-2014	Cooperative Agreement—Authorizing and directing the President of the Board of Service to enter into a Cooperative Agreement with Metropolitan Park and Recreation District d/b/a Great Rivers Greenway District for a project called "Bike St. Louis - Phase III"		(not codified)
69701	3-19-2014	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute for consideration a Quit Claim Deed unto SLLC Real Estate in City Block 3953 (formerly CB 2585)		(not codified)
69702	3-26-2014	Grant—Authorizing and directing the Mayor to enter into agreements with the Transdisciplinary Center on Health Equity Policy Research and Practice funded by the National Institute of Health's National Institute on Minority Health and Health Disparities; and authorizing the Mayor to expend funds by said agreement and to the agreement's obligations		(not codified)
69703	3-26-2014	Excise—Prohibiting the issuance of any package or drink liquor licenses for any currently unlicensed premises within the boundaries of the First Ward		(not codified)
69704	3-26-2014	Grant—Authorizing and directing the Chief of Police on behalf of the Mayor to enter into and execute a Grant Agreement with the U.S. Department of Homeland Security to fund the 2013 Port Security Grant Program and to expend funds by entering into contracts for grant purposes		(not codified)
69705	3-26-2014	Budget—Authorizing a supplemental appropriation by amending Ordinance 69432, the Budget for FY 2013-2014; appropriating projected excess lead remediation fund revenues to address certain expenditures in the Building Lead Remediation Program in the amount of $209,500		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69706	3-26-2014	50/50 Sidewalk Program—Authorizing the 2014 St. Louis Works and the 50/50 Sidewalk Program City Wide and providing for the construction and reconstruction of gutters, streets, driveways, spot curbs and other improvements listed in ordinance; appropriating $5,500,000 from the Street Improvement Fund		(not codified)
69707	3-26-2014	Public Meetings—Requiring the recording of all public meetings of the Board of Aldermen, including committee meetings, the Board of Apportionment; the Board of Public Service and the Preservation Board; requiring to make such recordings publicly available; containing definitions, distribution of recordings; the creation of a YouTube Channel	1—7 Added	3.115.010—3.115.070
69708	3-26-2014	Vacation—Vacating Second Street between Mound and Mullanphy		(not codified)
69709	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3870 Humphry St. Redevelopment Area		(not codified)
69710	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4616-30 & 4800-4802 N. Broadway and 201-209 E. Grand Redevelopment Area		(not codified)
69711	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3015 Indiana Ave.		(not codified)
69712	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 1941 Cherokee Street Redevelopment Area		(not codified)
69713	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3300 Illinois Ave. Redevelopment Area		(not codified)
69714	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3949 Castleman Ave. Redevelopment Area		(not codified)
69715	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3430 Hartford St. Redevelopment Area		(not codified)
69716	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3846 Botanical Ave. Redevelopment Area		(not codified)
69717	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 3411 Wyoming St. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69718	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Gravois & Meramec St. Redevelopment Area		(not codified)
69719	3-26-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 5707-15 & 5725-27 Parc Ridge Way Redevelopment Area		(not codified)
69720	3-26-2014	Vacation—Vacating a portion of Kemper to a point previously vacated by Ordinance 68544		(not codified)
69721	3-26-2014	Redevelopment Project—Adopting and approving redevelopment projects for Redevelopment Project Area 5 and Redevelopment Project 7 in the St. Louis Innovation District Tax Increment Financing Redevelopment Plan; adopting TIF within Redevelopment Project Area 5 and Redevelopment Project 7; establishing the RPA 5 Account and the RPA 7 Account of the St. Louis Innovation District Special Allocation Fund		(not codified)
69722	3-26-2014	Redevelopment Agreement—Authoring the execution of a Second Amendment to the Redevelopment Agreement with St. Louis Innovation District, LLC		(not codified)
69723	3-26-2014	Tax Increment Revenue Notes—Authorizing and directing the issuance and delivery of TIF Revenue Notes for the St. Louis Innovation District/ RPA 7 Project in an amount not to exceed $37,100,000 plus issuance cost in accordance with the terms of the redevelopment agreement		(not codified)
69724	3-26-2014	Vacation—Vacating a portion of the east/west alley in CB 938 as bounded by Delmar, 21st Street, Lucas and 22nd Street		(not codified)
69725	3-26-2014	Vacation—Vacating a portion of the east/west alley in CB 4591-W as bounded by Oakland Ave., Oakland Place, Berthold Ave., Hampton Ave, and Clayton Ave.		(not codified)
69726	3-26-2014	Vacation—Vacating a portion of the north/south alley in CB 576 as bounded by Cass, 10th, O'Fallon, and Tucker/13th		(not codified)
69727	4-18-2014	Vacation—Temporarily closing traffic at Whittier Street and McPherson		(not codified)
69728	4-18-2014	Quit Claim Deed—Approving the release and termination and authorizing the execution of the quit claim deed of a reversionary interest in certain property known as 412 South Sarah Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69729	4-18-2014	Airport—Authorizing a supplemental appropriation and set apart in the total amount of four million ($4,000,000) from the Airport Revenue Fund into the Annual Budget		(not codified)
69730	4-18-2014	Public Nuisances—Repealing Ordinance 68535 and enacting a new ordinance establishing procedures for the abatement of public nuisances identified by the Public Safety Director and establishing an occupancy list requirement	Rpld	15.42.010—15.42.070
			1—9 Added	15.42.010—15.42.090
69731	4-25-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the 4643 Lindell Blvd. Redevelopment Area		(not codified)
69732	4-25-2014	Quit Claim Deed—Authorizing and directing the Mayor and Comptroller to execute upon receipt of consideration a quit claim deed to Lunar Tool Building LLC certain property located in CB 4974 and known by the address of 1541 Tower Grove Place		(not codified)
69733	4-25-2014	Redevelopment Plan—Approving a blighting study and redevelopment plan for the Etzel Place V Redevelopment Area		(not codified)
69734	4-25-2014	Festival Reservation Agreement—Authorizing and directing the execution of a Festival Reservation Agreement with Summer Rocks LLC		(not codified)
69735	4-25-2014	High Merit Historic Properties—Establishing procedures for designation of High Merit historic properties that are undergoing demolition by neglect so as to prosecute owners and persons in control of properties on the list and to promote stabilization and restoration of such properties	1—13Added	11.90.010—11.90.130
69736	6-27-2014	Annual Operating Budget Plan for Fiscal Year 2014-2015—Appropriating payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
69737	5-20-2014	Ballot measure that extends the period of time to levy the special business tax for the Washington Place Special Business District		(not codified)
69738	5-20-2014	Ballot measure that continues the levy of a real property tax located in the Washington Place Special Business District		(not codified)
69739	5-20-2014	Ballot measure that extends the period of time to levy the special business tax for Waterman/Lake Special Business District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69740	5-20-2014	Ballot measure that continues the levy of a real property tax located in the Waterman/Lake Special Business District		(not codified)
69741	5-20-2014	Ballot measure that extends the period of time to levy the special business tax for the Westminster/Lake Special Business District		(not codified)
69742	5-20-2014	Ballot measure that continues the levy of a real property tax located in the Westminster/Lake Special Business District		(not codified)
69743	5-22-2014	Zoning—District map change from "A" and "F" to the "F" District in CB 6316 (4301 Hampton Ave.)		(not codified)
69744	5-22-2014	Zoning—District map change from "J" to "F" in CB 2268 and 2276.04 (1001 Mackay Place, 1116 Missouri and 2110-12 & 2118-30 Chouteau)		(not codified)
69745	5-22-2014	Streets—Establishes the 1100 Taylor Avenue Residential Parking District; designates location and restrictions for curb parking in residential parking zones within The Taylor Ave. Residential Parking District	1—5 Added	17.135.010—17.135.050
69746	5-22-2014	Tax Revenue Notes—Provides for the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its General Revenue Fund through issuance of Tax and Revenue Anticipation Notes		(not codified)
69747	5-22-2014	Community Improvement District—Authorizes and directs the Mayor and Comptroller to enter into and execute a First Amendment to the Amended and Restated Redevelopment Agreement with the Downtown Convention Center; approves a petition for the establishment of the St. Louis Convention Center Hotel 3 CID and authorizes an amendment to the Intergovernmental Cooperation and Transportation Project Agreement		(not codified)
69748	5-30-2014	Community Improvement District—Approves the Petition to Establish the Carrie Avenue CID		(not codified)
69749	5-30-2014	Grant—Authorizes and directs the Director of Human Services to accept a Grant Award from the Missouri Department of Corrections in the amount of $750,000 for re-entry services of former State offenders		(not codified)
69750	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1900 Washington Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69751	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4936-38 Odell St. Redevelopment Area		(not codified)
69752	6-17-2014	Redevelopment Plan—Amends Ordinance 69121 by clarifying the boundaries of Bremen Homes Redevelopment Area		(not codified)
69753	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3501 Utah Street Redevelopment Area		(not codified)
69754	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2701 Delmar Blvd.		(not codified)
69755	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4929-63 Manchester Ave. Redevelopment Area		(not codified)
69756	6-17-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2600 Samuel T. Shepard Dr. Redevelopment Area		(not codified)
69757	6-25-2014	Bonds—Establishes a bond committee to ensure efficiency, equity, timeliness and accountability in the expenditures from general obligation bonds	1—8 Added	3.125.010—3.125.080
69758	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3637 Utah Pl. Redevelopment Area		(not codified)
69759	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2841-47 Indiana Ave. Redevelopment Area		(not codified)
69760	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4409-25 Evans Ave. Redevelopment Area		(not codified)
69761	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4218 Maryland Ave. Redevelopment Area		(not codified)
69762	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5444 Oddell St. Redevelopment Area		(not codified)
69763	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2422-24 S. 11th Street Redevelopment Area		(not codified)
69764	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5135 Shaw Avenue Redevelopment Area		(not codified)
69765	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4467 Gibson Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69766	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 7200-7230 South Broadway		(not codified)
69767	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1910 Virginia Ave. Redevelopment Plan		(not codified)
69768	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2655 Accomac St. Redevelopment Area		(not codified)
69769	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3670 Flora Place Redevelopment Area		(not codified)
69770	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3663 Cleveland Ave. Redevelopment Area		(not codified)
69771	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4055-57 Shaw Blvd. Redevelopment Area		(not codified)
69772	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3516-18 Wyoming St. Redevelopment Area		(not codified)
69773	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3329 S. 7th Street Redevelopment Area		(not codified)
69774	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2724 Utah St. Redevelopment Area		(not codified)
69775	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1212-2014 Lynch St. Redevelopment Area		(not codified)
69776	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4156-58 Juniata St. Redevelopment Area		(not codified)
69777	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3548 Giles Ave. Redevelopment Area		(not codified)
69778	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6201-05 Columbia Ave. Redevelopment Area		(not codified)
69779	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2400 S. 9th Street		(not codified)
69780	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2010 Geyer Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69781	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6335 Bulwer Ave. Redevelopment Area		(not codified)
69782	6-25-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for Lookaway Dr./ Lookaway Ct. Redevelopment Area		(not codified)
69783	6-25-2014	Community Improvement District—Establishes the Sweetie Pie's Community Improvement District		(not codified)
69784	6-27-2014	Quit Claim Deed—A Quit Claim Deed to AGC of St. Louis Education Foundation for certain City-owned property located in CB 480 known as 1230 Grattan St. for the consideration of one hundred and fifty thousand dollars		(not codified)
69785	6-27-2014	Redevelopment Plans—Ordinance that affirms the approval of Ordinance No. 69609, 69610, 69612, 69614, and 69615		(not codified)
69786	7- 7-2014	Parking Commission—Appropriation for payment of operating expenses, capital equipment and improvement expenses and debt service expenses of the Parking Division of the Treasurer's Office		(not codified)
69787	7- 7-2014	Streets—New public street named the Margaret Bush Wilson Street, which is located from Finney Avenue on the north to C.D. Banks Ave. on the south and approximately 303 feet west of Vandeventer Ave.		(not codified)
69788	7- 7-2014	Traffic—Establishes a stop site for all northbound and southbound traffic on Newstead and Cote Brillante Ave.		(not codified)
69789	7- 7-2014	Vacation—Temporarily closes, barricades or impedes the flow of traffic on Ridge Avenue from the northeast corner to the southeast corner of 5364 Ridge Ave.		(not codified)
69790	7- 7-2014	Traffic—Establishes a four-way stop site at the intersection of Tesson Street and Schroeder Court		(not codified)
69791	7- 7-2014	Airport—Establishes and authorizes a public work and improvement program titled the "Building & Environ Projects-Security Access System Upgrades" at Lambert-St. Louis International Airport and authorizes an appropriation of $500,000 from the Airport Development Fund; authorizes the Director of Airports to let contracts and other services related to the implementation of the Program		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69792	7- 7-2014	Airport—Adoption of the Air Service Incentive Program for Fiscal Years 2015 -2017 which provides for financial incentives for new airlines or new air service at the Airport; authorizes the Director of Airports to implement and administer the program		(not codified)
69793	7- 7-2014	Airport—Transfer of $2,200,000 from the Airport Development Fund to the Airport Contingency Fund and transfer of $3,204,354.00 from the Airport Contingency Fund to the Airport Revenue Fund for the Airport's Air Incentive Program for Fiscal Years 2015-2017		(not codified)
69794	7- 7-2014	Streets—Establishes the 4200 Gibson Avenue Residential Park District and designates locations and restrictions for curb parking of residential parking zones within the District	1—6 Added	17.140.010—17.140.060
69795	7-10-2014	Tax—Directs the Treasurer of the City to deposit funds received pursuant to the Transit Sales Tax in to the City Public Transit Sales Tax Trust Fund—Account ONE and appropriates funds for the Bi-State Development Agency for fiscal year 2014-2015		(not codified)
69796	7-10-2014	Tax—Directs the Treasurer of the City to deposit funds received from the Transit Sales Tax into the City Public Transit Sales Tax Fund—Account TWO and appropriates funds for the Bi-State Development Agency for fiscal year 2014-2015		(not codified)
69797	7-10-2014	Tax—Appropriates the sum of $20,153,420 out of the Transportation Trust Fund to the Bi-State Development Agency for transportation purposes; contingent upon providing the annual evaluation report and paying the prevailing wages and benefits to employees of outside service contractors		(not codified)
69798	7-15-2014	Animals—Adoption of a policy supporting the Trap-Neuter-Return of feral cats by sponsors approved by the Department of Health; amends and repeals portions of Ordinances 67799, 66384, 62853, and 62941	1—3 Added	10.30.010—10.30.030
			4A	10.04.010 P.
			4B	10.04.050
			4C Added	10.04.060 E.
			4D	10.04.070 D.
			4E Added	10.04.160(a)
			4F	10.04.225

Ordinance Number	Date	Description	Section	Section this Code
			4G	10.20.017 B.4.
			4H	190.20.110
69799	7-15-2014	Lease—Authorizes the execution of a commercial lease with an option to purchase between the City and R &C Company		(not codified)
69800	7-15-2014	Quit Claim Deed—Approves the release and termination of a reversionary interest in property known as 4250R Duncan, 4240R Duncan, and 314 S. Sarah Street; authorizes the execution of a quit claim deed for said property		(not codified)
69801	7-15-2014	Community Improvement District—Approves the Petition to establish the Euclid South Community Improvement District		(not codified)
69802	7-15-2014	Community Improvement District—Approves the Petition to establish the 1831/2000 Sidney Street Community Improvement District		(not codified)
69803	7-15-2014	Memorandum of Agreement—Authorizes and directs the Mayor and Comptroller to execute a MOU between the City and Bi-State Development Agency for the purpose of providing trash removal services and receptacles at designated bus stops by the City's Refuse Division for a term of one year in the amount of $200,000		(not codified)
69804	7-16-2014	Vacation—Conditionally vacates surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in Pleasant Street from Carter to a point adjacent to CB 1404 and 1406		(not codified)
69805	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5223 Elizabeth Avenue Redevelopment Area		(not codified)
69806	7-28-2014	Parks—Renames the Dwight Davis Park to the "Gregory J. Carter Park" and repeals Ordinance 66271	2	22.44.110
69807	7-28-2014	Redevelopment Plan—Amends, affirms and authorizes tax abatement for 634 N. Grand Project under the Redevelopment Agreement set forth in Ordinance 65857 and amends Ordinance 68874 pertaining to the issuance and delivery of TIF Notes for the Grand Center Redevelopment Project by authorizing the Fifth Supplemental Trust Indenture		(not codified)
69808	7-28-2014	Fortunetellers—Repeals Chapter 15.86 pertaining to fortunetellers	1 Rpld	15.86.010—15.85.030

Ordinance Number	Date	Description	Section	Section this Code
69809	7-28-2014	Office of Financial Empowerment—Establishes the Office of Financial Empowerment as a Division of the Treasurer's Office and sets forth the purpose and powers and limitations of the Office	1—3 Added	3.130.010—3.130.030
69810	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4517-25 S. Kingshighway Blvd. Redevelopment Area		(not codified)
69811	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3822 Flad Avenue Redevelopment Area		(not codified)
69812	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2622-24 Cherokee Street		(not codified)
69813	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3023-25 Allen Ave. Redevelopment Area		(not codified)
69814	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3818-20 Arsenal Street Redevelopment Area		(not codified)
69815	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3433 McKean Ave. Redevelopment Area		(not codified)
69816	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1515-21 S. 39th St., 3901-09 Folsom Ave., 3861-69 McRee Ave. and 3867 Lafayette Ave. Redevelopment Area		(not codified)
69817	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2017 Allen Avenue Redevelopment Area		(not codified)
69818	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3150-56 S. Grand and 3515-21 Juniata St. Redevelopment Area		(not codified)
69819	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3806 Flad Ave. Redevelopment Area		(not codified)
69820	7-28-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2629 South 11th Street Redevelopment Area		(not codified)
69821	7-28-2014	Health—Establishes an administrative procedure to enforce compliance with the provisions of the regulatory codes relating to health and safety	1—12Added	11.95.010—11.95.120
			Exh. A (1—5) Added	11.95.130

Ordinance Number	Date	Description	Section	Section this Code
69822	9-22-2014	Zoning—District Map change from "J" Industrial District to "F" Neighborhood Commercial District in CB 3043 (7200-30 S. Broadway)		(not codified)
69823	10-10-2014	Zoning—District Map change from "G" and "J" to "J" Industrial District in CB 3956 (3992 Gratiot Street)		(not codified)
69824	10-14-2014	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute the Management and Operation Facilities Services Agreement AL-267 between the City and ABM Parking Services		(not codified)
69825	10-14-2014	Airport—Authorizes and directs the Mayor and Comptroller to execute and deliver the First Amendment To Intergovernmental Agreement between the City and Bi-State Development Agency		(not codified)
69826	10-14-2014	Airport—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute Banking Concession Agreement AL-278 between the City and U.S. Bank National Association		(not codified)
69827	10-14-2014	Authorizes and directs the President of the Board of Public Service to enter into eight (8) Missouri Highways and Transportation Commission Supplemental Agreements for Highway/Rail Crossing Improvements with the Missouri Highways and Transportation Commission		(not codified)
69828	10-15-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4187-91 Manchester Ave.		(not codified)
69829	10-15-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1115-21 Pine St.		(not codified)
69830	10-15-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 823-27 Washington Ave.		(not codified)
69831	10-15-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5528 & 5560 Pershing Ave.		(not codified)
69832	10-15-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4449-73 Evans Ave. Redevelopment Area		(not codified)
69833	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Magnolia/Oregon/Ohio Ave. Scattered Sites Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69834	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3304 Shenandoah Ave. Redevelopment Area		(not codified)
69835	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3130 Ohio Ave. Redevelopment Area		(not codified)
69836	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5624 Magnolia Ave. Redevelopment Area		(not codified)
69837	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4019 Magnolia Pl. Redevelopment Area		(not codified)
69838	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5320 Brannon Ave. and 5214 Walsh St. Redevelopment Area		(not codified)
69839	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2340 S. 11th Street Redevelopment Area		(not codified)
69840	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1041 Shenandoah Ave. Redevelopment Area		(not codified)
69841	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3904 Hartford St. Redevelopment Area		(not codified)
69842	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3804 & 3822 Humphrey St. Redevelopment Area		(not codified)
69843	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5132 Daggett Ave. Redevelopment Area		(not codified)
69844	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5103-05 Wicklow Pl. Redevelopment Area		(not codified)
69845	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4321-25 Manchester Ave. Redevelopment Area		(not codified)
69846	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1409 Missouri Ave. Redevelopment Area		(not codified)
69847	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3501 California Ave. Redevelopment Area		(not codified)
69848	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2117 Russell Blvd. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69849	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4151-53 Cleveland Ave. and 4012 Flad Ave. Redevelopment Area		(not codified)
69850	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3854, 3858, & 3860 Shenandoah Redevelopment Area		(not codified)
69851	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5201-03 Virginia Ave. Redevelopment Area		(not codified)
69852	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3884 Fairview Ave. Redevelopment Area		(not codified)
69853	10-22-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3518 Utah St. Redevelopment Area		(not codified)
69854	10-23-2014	Streets—Directs the Director of Streets to close, barricade or otherwise impede the flow of traffic on Maple Avenue at the east curb line of Clarendon Ave.		(not codified)
69855	10-28-2014	Streets—Honorarily designates 7th Street as "Shannon's Way"		(not codified)
69856	10-28-2014	Vacation—Conditionally vacates a portion of Compton from Fassen and extending southwardly to northern line of the alley in CB 2855 and adjacent to 424 Fassen		(not codified)
69857	10-28-2014	Vacation—Conditionally vacates a 15 foot wide north/south alley in City Block 4781-S as bounded by Children's Place, Taylor Ave. Scott Ave. and Euclid Ave.		(not codified)
69858	11- 4-2014	Zoning—District Map change from "A" to "F" in CB 5090 (4537, 4541, and 4545 Geraldine Ave.)		(not codified)
69859	11- 4-2014	Grant—Authorizes and directs the Medical Examiner to accept grant monies from Mid America Transplant Services for the improvement of infrastructure and equipment in the Medical Examiner's Office		(not codified)
69860	11- 4-2014	Budget—Authorizes a supplemental appropriation, amends Ordinance 69736 which is the Operating Plan for Fiscal Year 2014-15; and sets apart projected excess receipts in The Equitable Relief from Utility Tax Fund in the amount of $125,000 to provide financial assistance to low income residents for payment of utility bills		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69861	11- 4-2014	Grant—Authorizes and directs the Director of Human Services to accept a Grant Agreement Award from HUD from the 2012 Continuum Care Grant Application		(not codified)
69862	11- 6-2014	Grant—Authorizes and directs the Director of Human Services to accept a Grant Award from the Missouri Alliance of Area Agencies and to expend those funds for the Navigator Project		(not codified)
69863	11- 6-2014	Streets—Honorarily designates Providence Place between Minnesota Avenue and Michigan Avenue as "Knapstein Place"		(not codified)
69864	11-18-2014	Excise—Repealing Ordinance 68997 and enacting a new ordinance prohibiting the issuance of any package or drink liquor licenses for any non-licensed premises within the boundaries of the Twenty-Seventh Ward Liquor Control District for a period of 3 years		(not codified)
69865	11-18-2014	Excise—Repeals Ordinance 69009 and enacts a new ordinance prohibiting the issuance of any package liquor or drink licenses for currently non-licensed premises within the boundaries of the Fourteenth Ward Liquor Control District		(not codified)
69866	11-18-2014	Airport—Authorizes an Eighth Supplemental Appropriation in the amount of $519,300 from the Airport Development Fund into the Airport Schedule F CIP Project Ordinance 67357, as amended by Ordinance 68650 and 68852		(not codified)
69867	11-18-2014	Airport—Establishes and authorizes a public works and improvement project, the Emergency Building and Environs Project) and authorizes the appropriation of $971,978 from the Airport Development Fund to pay for the costs of emergency work and services; authorizes the Mayor and the City to enter into and execute easement agreements granting such easements or right of ways for the administration and implementation of the Emergency Building and Environs Project and authorizes the Director of Airports to let contracts for services relating to the Project		(not codified)
69868	11-18-2014	Airport—Authorizes a supplemental appropriation in the amount of $1,078,022 from the Airport Development Fund to the Annual Budget		(not codified)
69869	11-18-2014	Airport—Authorizes the transfer of $2,050,000 of excess moneys from the Debt Service Stabilization Fund to the Airport Development Fund in accordance with the Airport Indenture Trust between the City and UMB Bank		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69870	11-18-2014	Airport—Establishes and authorizes a public works and improvement program, the Airfield, Building & Environs Projects) consisting of capital improvement projects to and for the terminal complexes, concourses, parking facilities, taxiways, runways, aprons, and other associated Airport improvements; and authorizes an initial appropriation of $13,287,271 from the Airport Development Fund and authorizes the letting of contracts for services related to the project		(not codified)
69871	11-18-2014	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute and Agreement and Contract of Sale between the City and NorthPark Partners LLC for the sale of approximately 6.475 acres of City land for the amount of $225,000 and providing for the purchase of land owned by NorthPark for the amount of $17,700 subject to the applicable rules and regulations of the FAA; authorizes the Mayor and Comptroller to enter into and execute a Quit Claim Deed		(not codified)
69872	11-18-2014	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute seven On-Airport Passenger Vehicle Rental Concession Agreements with The Hertz Corporation, Avis Rent a Car System, Enterprise, Budget, Alamo, and C & J Rental (Thrifty Car Rental)		(not codified)
69873	11-18-2014	Intergovernmental Cooperation Agreement—Authorizes the execution of an intergovernmental cooperation agreement between the City and Carrie Avenue Community Improvement District		(not codified)
69874	11-18-2014	Excise—Repeals Ordinance 69597 and enacts new prohibition on the issuance of any package or drink liquor licenses for any non-licensed premises within the boundaries of the 10th Ward Liquor Control District for a period of three years		(not codified)
69875	11-18-2014	Excise—Repeals Ordinance 69594 and enacts a new prohibition on the issuance of any package liquor licenses for non-licensed premises within the boundaries of the 22nd Ward Liquor Control District		(not codified)
69876	11-18-2014	Grant—Submission of the 2015-19 Consolidated Plan and 2015 Annual Plan to the HUD for funding under the CDBD, HOME, ESG OPWA, and authorizes and directs the Mayor and Comptroller to enter into and execute agreements for such funds		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69877	11-21-2014	Parks—Approves the assignment by CLP Leasehold Gold LLC to CF Forest Park Acris LLC, consents to the Amended and Restated Lease Agreement		(not codified)
69878	11-21-2014	Port—Authorizes and directs the Mayor and Comptroller to enter into a lease agreement between the City and ACL Transportation Services LLC for certain land mooring privileges on the Unimproved Wharf for a period of 10 years with 3 and 5 year mutual options		(not codified)
69879	11-21-2014	Poet Laureate—Establishes a poet laureate position and creates at Poet Laureate Task Force, which will administer the selection of qualified candidates	1—4 Added	3.135.010—3.135.040
69880	11-21-2014	Airport—Authorizes and directs the Director and Comptroller to enter into and execute a Dual Customs Agreement		(not codified)
69881	11-26-2014	Public Works—Establishes a public works and improvement project for the Downtown Traffic Signal and Intersection Improvements—Broadway, 7th Street, Chestnut, and Market Street and authorizes and directs the Board of Public Service to let contracts for design, construction, materials and services needed to complete the Downtown Traffic Signal and Intersection Improvement Project		(not codified)
69882	11-26-2014	Streets—Establishes the 4500 Gibson Avenue Residential Park District and authorizes the Traffic Administrator to designate location and restrictions for curb parking in residential parking zones within the District	1—6 Added	17.145.010—17.145.060
69883	12- 4-2014	Streets—Amends Section 10 of Ordinance 68604, pertaining to banners, codified as Section 20.28.150	1	20.28.150
69884	12- 4-2014	Vacation—Vacates above surface, surface, and sub-surface rights for vehicle, equestrian and pedestrian travel in two irregular portions of Shaw between Kingshighway by Vandeventer		(not codified)
69885	12- 4-2014	Vacation—Vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in Herbert from Clara to Blackstone, Blackstone from Herbert to Ashland, and Ashland to Blackstone and others areas set forth in the ordinance		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69886	12- 4-2014	Vacation—Vacates above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in a portion of the east/west alley in CB 3198 beginning at Vulcan to the north/ south alley in CB 3198		(not codified)
69887	12-18-2014	Zoning—District Map change from "C" to "B" District in CB 1426 (2842 Magnolia)		(not codified)
69888	12-18-2014	Zoning—District map change from "A" to "F" in CB 4074 (a portion of 5213 Bischoff)		(not codified)
69889	12-18-2014	Airport—Authorizes the Ninth Supplemental Appropriation of $2,089,440.64 from the Airport Construction Fund for the 2009 Series A-1 Bond Issue for the payment of costs for work and services authorized for the Airport Schedule F CIP Project		(not codified)
69890	12-18-2014	Airport—Authorizes and directs the Director and the Comptroller to enter into and execute the First Amendment to the Vending Concession Agreement to Agreement No. AL-245 between the City and AVendCo, LLC		(not codified)
69891	12-18-2014	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Leasehold Revenue Refunding Bonds and its Leasehold Revenue Improvement Bonds to fund the construction, repair, improvement, and renovation of the Cervantes Convention Center in the amount of $25,000,000		(not codified)
69892	12-18-2014	Grant—Authorizes the Mayor to apply for funding under HUD Office for Healthy Homes and Lead Hazard Control being offered for Federal Fiscal Year 2014 for the Lead Hazard Reduction Demonstration Grant; authorizes and the Mayor and Comptroller to execute agreements with HUD and appropriates $2,500,00 awarded through the Lead Hazard Reduction Demonstration Program		(not codified)
69893	12-18-2014	Authorizes the City to establish a green community program for the purpose of making low interest loans for residential energy efficient projects and public building energy conservation projects and to issue and sell Qualified Energy Conservation Bonds in an amount not to exceed $3,900,000 to finance public building energy conservation projects and the low interest loan green community program		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69894	12-20-2014	Parks—Requires a special event permit from the Parks Department for open fires and barbecuing pits in Benton Park and only at a site designated by the Parks Department		(not codified)
69895	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2804-08 and 2814-20 Compton Ave., 3151-53 Halliday Avenue, and 3152 Magnolia Ave. Redevelopment Area		(not codified)
69896	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2925 Lemp Ave. Redevelopment Area		(not codified)
69897	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3453 Wisconsin Ave. Redevelopment Area		(not codified)
69898	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2615 January Ave. Redevelopment Area		(not codified)
69899	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for Amended Hyde Park Scattered Sites V Redevelopment Area		(not codified)
69900	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1011 Olive St.		(not codified)
69901	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3828-30 Folsom & 3826032 McRee Ave.		(not codified)
69902	12-23-2014	Tax Increment Revenue Notes—Authorizes and directs the execution, delivery, and issuance of the Excluded Project Series 201_B Notes and the Sixth Supplemental Indenture		(not codified)
69903	12-23-2014	Redevelopment Project—Authorizes the dissolution of the Special Allocation Fund for the Automobile Row Redevelopment Project Area 1, terminates the designation of that portion of the area as a redevelopment area		(not codified)
69904	12-23-2014	Redevelopment Project—Authorizes the City to assign TIF revenues and municipal revenues attributable to the Southtown Redevelopment Area for the purpose of paying the principal and interest on certain bonds to be issued by the Industrial Development Authority; authorizing the execution of certain documents related thereto		(not codified)
69905	12-23-2014	Tax Increment Financing—Determination that certain Tax Increment Financing Plans are making satisfactory progress under the proposed time schedule for completion of the projects, as set forth in the attached exhibit		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69906	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6828 Oakland Ave.		(not codified)
69907	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4108-10 Castleman Ave.		(not codified)
69908	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4957-63 Arsenal Street		(not codified)
69909	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1349 N. Garrison Ave. Redevelopment Area		(not codified)
69910	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1918 Edwards St. Redevelopment Area		(not codified)
69911	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2106 Wyoming St.		(not codified)
69912	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2021 Rutger Street Redevelopment Area		(not codified)
69913	12-23-2014	Redevelopment Agreement—Authorizes the execution of a third amendment to the redevelopment agreement with St. Louis Innovation District LLC, establishes the SSTIF Account of the St. Louis Innovation District, and authorizes and directs the Mayor and Comptroller to execute and deliver a Second Supplemental Trust Indenture, Financing Agreement and a Tax Compliance Agreement and a Continuing Disclosure Agreement		(not codified)
69914	12-23-2014	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3838 Flora Place		(not codified)
69915	1-20-2015	Special Business District—Establishes the DeBaliviere Place Special Business District; setting its boundaries, tax rate, initial rate of levy subject to the approval of the voters, creates a board of commissioners		(not codified)
69916	1-20-2015	Special Business District—Submits ballot measure to qualified voters to levy a tax on real property located the DeBaliviere Place Special Business District		(not codified)
69917	1-20-2015	Bonds—Authorizes and directs the City, through the Treasurer, to issue subordinated parking revenue bonds in the amount not to exceed $6,750,000; approves and authorizes the execution of a Supplemental Trust Indenture No. 4 and the execution of a bond agreement		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69918	1-20-2015	Airport—Authorizes the transfer of up to $13,727,769 from the Debt Service Stabilization Fund to Airport Revenue Fund to be used to mitigate rates on an annual basis during the term of the Airport Use and Lease Agreement		(not codified)
69919	1-20-2015	Airport—Authorizes and directs the Director and Comptroller to enter into and execute the WiFi and Distributed Antenna System Operating Agreement, AL-263 with Concourse Communications Group for the installation, operation, marketing, maintenance, and management of the Wireless Internet Access and Distributed Antenna System at the Airport		(not codified)
69920	1-20-2015	Airport—Authorizes and directs the Director and Comptroller to enter into and execute Lease Agreement AL-161 with Union Electric Company d/b/a Ameren-Missouri		(not codified)
69921	1-20-2015	Redevelopment Plan—Approves Addendum No. 6 to the Development Plan of Laclede's Landing Redevelopment Corporation; amends the Development Plan approved by Ordinance 57085; authorizes the Mayor and Comptroller to enter into an Amendment to the Redevelopment Agreement with Laclede's Landing Redevelopment Corporation		(not codified)
69922	1-20-2015	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Forest Park Leasehold Refunding Bonds, Series 2015 in an amount not to exceed $11,000,000; authorizes and directs the Corporation to execute and deliver the Fourth Supplemental Indenture of Trust and any other related agreement		(not codified)
69923	1-26-2015	Special Business District—Establishes the Lafayette Square Special Business District; sets its boundaries, tax rate, and the initial rate of levy subject to the approval by voters		(not codified)
69924	1-26-2015	Special Business District—Submits ballots measure to the qualified voters to levy a tax on real property located in the Lafayette Square Special Business District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69925	1-30-2015	Lease Certificates—Authorizes and directs the execution and delivery, in one or more series, of lease certificates of participation obligations of the City, evidencing interests in the right to receive rentals to be made by the City pursuant to annually renewable lease agreement in the aggregate amount of not to exceed $5,500,000 for refinancing and refunding all or a portion of the St. Louis Municipal Finance Corporation Lease Certificates of Participation Series 2008; funding a debt service reserve account and paying for the costs of issuance of Series 2015 Obligations		(not codified)
69926	2- 3-2015	Quit Claim Deed—Directs the Mayor and Comptroller to sell certain real estate located between Branch and Dock Street at No. 5 Branch Street within CB 661E in the St. Louis Port Authority District to Gunther Salt Company and Great Rivers Greenway District, and to execute and deliver a Quit Claim Deed for the sum of not less than $123,264		(not codified)
69927	2- 3-2015	Port—Authorizes and directs the Mayor and Comptroller to enter into a lease agreement between the City and Continental Cement Company LLC for mooring privileges and easements on certain land on the Unimproved Wharf for a period of 10 years with three five year mutual options		(not codified)
69928	2- 3-2015	Zoning—District map change from "G," "H," and "J" Districts; "D" and "G" District; "D" and "H" District to the "D" District, only, in City Blocks 389, 390, 401, 402, 464.04, 465.04, 472.03, 473.03, and 474.03		(not codified)
69929	2- 3-2015	Sheriff's Office—Amends Section Seven of Ordinance 69190 to adjust the salaries of employees in the Sheriff's Office and enacts a new section authorizing at the discretion of the Sheriff, a two percent salary increase for employees	1	4.36.060
69930	2-10-2015	Excise—Repeals Ordinance 68943 and enacts a new ordinance prohibiting the issuance of any package liquor licenses for a period of three years for any premises within the boundaries of the Twenty-Fourth Ward Liquor Control District		(not codified)
69931	2-10-2015	Excise—Prohibits the issuance of any package liquor licenses for any premises within the boundaries of the Fifteenth Ward Liquor Control District for a period of 3 years with exceptions to transfer licenses for existing license holders		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69932	2-10-2015	Streets—Authorizes the 2015 St. Louis Works and the 50/50 Sidewalk Programs City Wide and appropriates $5,500,000 from the Street Improvement Fund		(not codified)
69933	2-10-2015	Airport—Authorizes and establishes a multi-year public works and improvement program at the Airport for an Environmental, Planning, Programming and Remediation Implementation Program and authorizing an initial appropriation of $1,000,000 from the Airport Development Fund for payment of costs associated with the work or services for the Program; authorizing and directing the Director to let contracts and to enter into agreements		(not codified)
69934	2-10-2015	Airport—Authorizes and direct the Director and the Comptroller to enter into and execute two ATM Concession Agreements with Bank of America and CardTronics USA		(not codified)
69935	2-17-2015	St. Louis Landmark—Designates Tillie's Corner, located at 1345-55 N. Garrison Ave. at Sheridan Ave., as a City of St. Louis Landmark		(not codified)
69936	2-17-2015	St. Louis Landmark—Designates the New Age Federal Savings and Loan Building at 1401 N. Kingshighway as a City of St. Louis Landmark		(not codified)
69937	2-17-2015	Streets—Honorarily designates the intersection of Walton and Olive Street as the "Rev. Melvin Smotherson Ave.		(not codified)
69938	2-17-2015	Streets—Honorarily designates Goodfellow Blvd. between Enright and Delmar as "Rev. Tommie Ringo Blvd."		(not codified)
69939	2-17-2015	Airport—Authorizes and directs the City to issue Airport Revenue Refunding Bonds, Series 2015 in an amount not to exceed $20,000,000		(not codified)
69940	2-17-2015	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in excess portion of Holly Hills of an irregular shape at the western line of Grand Ave. adjacent to City Block 5869		(not codified)
69941	2-17-2015	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in a portion of Wise between Kingshighway and Brother Thornton Way and a portion of the east/west alley in CB 3996 abutting 4936-50 Wise and bounded by Wise, Kingshighway, Manchester and Hereford		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69942	2-17-2015	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in Parkview Pl. from Euclid to Kingshighway		(not codified)
69943	2-17-2015	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in the western 15' wide north/south alley in CB 5653 from Delor to the northern 15' east/west alley in the same City Block and bounded by Delor, Adkins, Walsh and Morganford		(not codified)
69944	2-17-2015	Community Improvement District—Approves the Petition and establishes the Forsyth Associates Community Improvement District		(not codified)
69945	2-17-2015	Intergovernmental Cooperation Agreement—Authorizes and directs the Mayor and Comptroller to execute an intergovernmental cooperation agreement with Carondelet Commons Community Improvement District		(not codified)
69946	2-17-2015	Airport—Authorizes and directs the Director and Comptroller to enter into and execute an Agreement and Contract of Sale with NorthPark Partners for the sale of approximately 2.554 acres for $150,000; directs the Mayor and Comptroller to enter into and execute the Form of Quit Claim Deed for St. Louis Property		(not codified)
69947	2-17-2015	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in a 15 foot wide east/west alley in CB 1814 as bounded by Chouteau, Jefferson, LaSalle and Ohio		(not codified)
69948	2-18-2015	Planning Commission—Repeals the requirement of the approval of the City Planning Commission of all applications for proposed residential structures or uses that are to be governmentally subsidized; repeals Section One of Ordinance 56167, codified as 25.48.010	1 Rpld	25.48.010
69949	2-18-2015	Civil Service Plan—Repeals Ordinances 69189 and 69617 and adopts new compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; allocates certain other employees to a grade with rate	1—28Added	4.10.010—4.10.280
			30 Rpld	4.10.010—4.10.270

Ordinance Number	Date	Description	Section	Section this Code
69950	2-18-2015	Zoning—District Map Change from "B" and "H" to "H" Area Commercial District only in City Block 1445 (2700 S. Grand Blvd.)		(not codified)
69951	2-18-2015	Streets—Directs the Director of Streets to temporarily close, barricade or otherwise impede the flow of traffic at Emerson at Lillian Ave.		(not codified)
69952	2-18-2015	Community Improvement District—Approves the Petition to establish the 2350 South Grand Community Improvement District		(not codified)
69953	2-18-2015	Civil Rights Enforcement Agency—Amends definitions under the Civil Rights Enforcement Agency, repeals Section Two of Ordinance 67119, codified as 3.44.010, and enacts a new section to include the definition of "Source of Income"	1	3.44.010
69954	2-18-2015	Cooperation Agreement—Authorizes the City to execute a Cooperation Agreement which amends, in part, the Agreement incorporated into Ordinance 69732, and allows for the City, Great Rivers Greenway District, and the CityArch River 2015 Foundation to provide procedures for their cooperation in the project and for the maintenance of City blocks 114 and 131		(not codified)
69955	2-25-2015	Complete Streets—Repeals Ordinance 68663, codified as 3.110.120, and enacts a new Complete Streets policy for the City	1 Rpld	3.110.120
			2—5 Added	3.110.120
69956	2-25-2015	Redevelopment Plan—Amends Ordinance 69758 by modifying the terms of the real estate tax abatement for 3637 N. Utah Place Redevelopment Area		(not codified)
69957	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2329-51 Market St. Redevelopment Area		(not codified)
69958	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4056 Russell Blvd. Redevelopment Area		(not codified)
69959	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2112 Sidney Street		(not codified)
69960	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2613-17 Marcus Ave.		(not codified)
69961	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3318 Wisconsin Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69962	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1956 Wyoming St. Redevelopment Area		(not codified)
69963	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5528 Botanical Ave. Redevelopment Area		(not codified)
69964	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5435 Elizabeth Ave. Redevelopment Area		(not codified)
69965	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2350 Grand Ave. Redevelopment Area		(not codified)
69966	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4135-37 Shaw Blvd		(not codified)
69967	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2413 S. 10th Street Redevelopment Area		(not codified)
69968	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 851-859 Goodfellow Blvd. Redevelopment Area		(not codified)
69969	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3219 Regal Place Redevelopment Area		(not codified)
69970	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3923 Cleveland Ave. Redevelopment Area		(not codified)
69971	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2640 Arsenal St. Redevelopment Area		(not codified)
69972	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4448 Oakland Ave. Redevelopment Area		(not codified)
69973	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1917 Rutger St. Redevelopment Area		(not codified)
69974	2-25-2015	Redevelopment Agreement—Authorizes the execution of a First Amendment to Amended and Restated Redevelopment Agreement with Northside Regeneration		(not codified)
69975	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5519 Botanical Ave. Redevelopment Area		(not codified)
69976	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5532 Magnolia Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69977	2-25-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for Cass Ave., Jefferson Ave./Parnell St., Montgomery St., North 22nd St. Redevelopment Area		(not codified)
69978	2-25-2015	Community Improvement District—Adopts and approves the petition to establish the CWE Business Community Improvement District to expand the boundaries/add property of the District		(not codified)
69979	2-25-2015	Redevelopment Plan/Area/Project—Affirms adoption of a redevelopment plan, area, and project; authorizes the execution of a redevelopment agreement with ROL Capital III Inc.		(not codified)
69980	2-25-2015	Redevelopment Plan/Area/Project—Designates Union Station Phase 2 as a Redevelopment Area for tax increment financing, approves a redevelopment plan and a redevelopment project, adopts TIF financing within the area		(not codified)
69981	2-25-2015	Tax Increment Notes—Authorizes and directs the issuance and delivery of tax increment finance notes not to exceed $18,500,000 for the Union Station Phase 2 Redevelopment Project		(not codified)
69982	3- 1-2015	Civil Service System—Establishes a military veteran hiring preference system for the civil service system with definitions, scoring system and documentation requirements	1—4 Added	4.10.290
69983	4-23-2015	Quit Claim Deed—Authorizes and directs the Mayor and Comptroller to execute a Quit Claim Deed to Jaruba Corporation for City-owned property located in CB 5114, known as 4213 Gibson Avenue upon the receipt and consideration of $375,000		(not codified)
69984	5- 6-2015	Civilian Review Board—Establishes a Civilian Oversight Board for the St. Louis Metropolitan Police Department; contains definitions, the Board's composition, powers and duties, the administrative structure, inspection and investigation powers, as well as cooperation with the Police Department and confidentiality provisions	1—8 Added	3.140.010—3.140.080
69985	6-30-2015	Annual Operating Budget Plan for Fiscal Year 2015-2016—Appropriates payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
69986	5-26-2015	Bonds—Directs and provides for a ballot measure to issue general obligation bonds in the amount not to exceed $180,000,000		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69987	5-28-2015	Real Property Agreement—Agreement that authorizes the sale of real estate and purchase and lease agreement with Proctor & Gamble		(not codified)
69988	5-28-2015	Tax and Revenue and Anticipation Notes—Authorizes the borrowing of funds in collection of tax payments levied by the City for deposit in its General Revenue Fund for the calendar year ending December 31, 2015 and FY ending June 30, 2016		(not codified)
69989	6- 1-2015	Airport—Wine Bar Concession Agreement AL-354 between the City and Taste, Inc. d/b/a Vino Volo		(not codified)
69990	6- 1-2015	Airport—Airport Aid Agreement with Missouri Highways and Transportation Commission ("Grant Agreement) for $592,000		(not codified)
69991	6- 1-2015	Airport—Lease Agreement with Bi-National Gateway Terminal, LLC consisting of 48.75 acres known as the Northern Tract East Site		(not codified)
69992	6-17-2015	Streets—Establishes the 4500 Wichita Avenue Residential Park District; designates location and restrictions for curb parking in residential parking zones within District	1—6 Added	17.150.010—17.150.060
69993	6-17-2015	Zoning - District map change from "E", "H", and "J" to "H" only in CB 1959, 1960, and 3928		(not codified)
69994	6-17-2015	Public Works - Establishes a public works and improvement project for the Columbia and Southwest Bridge Reconstruction over the Union Pacific Railroad involving the demolition of the Colombia Avenue Bridge and the Southwest Avenue Bridge; authorizing the execution of contracts and other actions in furtherance of the project in the amount of three million dollars ($3,000,000)		(not codified)
69995	6-17-2015	Public Works—Establishes a public works and improvement project for the Germania Improvement Project from Gravois to Interstate 55 in the amount not to exceed $1,600,000		(not codified)
69996	6-17-2015	Parking Commission—Appropriates payment for the operating expenses, capital equipment and improvement expenses, including lease purchase agreements involving Parking Division assets and debt service expenses of the Parking Division and various parking facilities in the amount of $17,530,084		(not codified)
69997	6-17-2015	Traffic—Establishes a stop site at Loughborough Ave at Field Ave		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
69998	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6215 Marmaduke Avenue		(not codified)
69999	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4231, 4233, & 4241 Gibson Ave. Redevelopment Area		(not codified)
70000	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4100-08 Lindell Blvd. Redevelopment Area		(not codified)
70001	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4245 West Pine Blvd. Redevelopment Area		(not codified)
70002	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4526-4628 Olive St.		(not codified)
70003	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6200-12 N. Broadway		(not codified)
70004	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3531-3537 South Kingshighway Blvd. Redevelopment Area		(not codified)
70005	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5921 Southwest Ave., 4405 Fyler Ave., and 3279-3283 Alfred Ave. Redevelopment Area		(not codified)
70006	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2819 McNair Redevelopment Area		(not codified)
70007	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3324 Wisconsin Ave. Redevelopment Area		(not codified)
70008	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1904 Withnell Ave. Redevelopment		(not codified)
70009	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3321-23 Demenil Place Redevelopment Area		(not codified)
70010	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4125 Russell Blvd. Redevelopment Area		(not codified)
70011	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4218 Cleveland Ave. Redevelopment Area		(not codified)
70012	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4247-49 Russell Blvd. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70013	6-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1817-19 Thurman Ave. Redevelopment Area		(not codified)
70014	6-26-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 302 N. Kingshighway Blvd.		(not codified)
70015	6-26-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2209-17 Olive St. Redevelopment Area		(not codified)
70016	6-26-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5800 Goodfellow Blvd. Redevelopment Area		(not codified)
70017	6-26-2015	Vacation—Vacates westernmost 150 feet of the 15 foot wide/east alley in the CB 3765-N as bounded by the Fountain, Aubert, Enright and Kingshighway		(not codified)
70018	6-26-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2035 Lucas Avenue & 2030 Delmar Blvd. Redevelopment Area		(not codified)
70019	6-29-2015	Civil Service Plan - Repeals Ordinance 69193 and adopts new compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; repeals Ordinance 69193; allocates certain other employees to a grade with rate	1—28 Rpld	4.54.010—4.54.230
			Added	4.54.010—4.54.280
70020	6-29-2015	Collector of Revenue -Repeals Ordinances 69189 and 69617; allocating certain other employees to grade with rate	2—8	4.44.010—4.44.070
70021	6-29-2015	Zoning—District map change from "D" to "F" in CB 645 (1714-16, 1718, 1720, and 1722 N. 13th Street)		(not codified)
70022	6-29-2015	Zoning—District map change from "C" to "J" in CB 1898 (2524-30, 2600-04, 2606, 2608, 2610, 2614, 2616-20, 2622, 2624, & 2630) Glasgow Ave.		(not codified)
70023	6-29-2015	Zoning—District Map change from "J" to "H" in CB 2181.06		(not codified)
70024	6-29-2015	License Collector—Repeals Ordinance 68706 and enacts in lieu thereof a new ordinance relating to the appointment and rates of compensation of certain employees of the License Collector	2—13	4.28.010—4.28.120

Ordinance Number	Date	Description	Section	Section this Code
70025	6-29-2015	Excise—Repeals Ordinance 69865 and enacting a new ordinance prohibiting the issuance of any package liquor licenses for any currently non-licensed premises within the boundaries of the 14th Ward Liquor Control District		(not codified)
70026	6-29-2015	Excise—Repeals Ordinance 69159 and enacting a new ordinance prohibiting the issuance of any 3 a.m. closing permits for any currently non-3 a.m. licensed premises within the boundaries of the Twenty-Eight Ward Liquor Control District		(not codified)
70027	6-29-2015	Health—Authorizes and directs the Director of the Department of Human Services to enter into a contract with the Missouri Alliance of Area Agencies on Aging in the amount of $15,000 for the Benefit Enrollment activities for Adults with Disabilities and Senior Citizens		(not codified)
70028	6-29-2015	Grant—Authorizes and directs the Mayor and Comptroller to enter into, accept and execute Grant Agreements offered by the USA acting through the US Department of Housing and Urban Development		(not codified)
70029	6-29-2015	Traffic—Establishes a stop site for Stolle Street at Primm Street		(not codified)
70030	6-29-2015	Traffic—Establishes a stop site for Stolle Street at Tesson Street		(not codified)
70031	6-29-2015	Traffic—Establishes a stop site for Loughborough Ave. at Macklind Ave.		(not codified)
70032	6-29-2015	Budget—Authorizes a supplemental appropriation by amending Ordinance 69736, operating budget for FY 2014-15, in the amount of $6,700,000		(not codified)
70033	7- 7-2015	Vacation—Conditionally vacating a portion of 18th Street abutting the NW corner of CB 482-WA and a portion of South 18th Street		(not codified)
70034	7- 7-2015	Easement—Authorizes the Mayor and the Comptroller to execute a perpetual streetscape easement with Missouri Development Finance Board		(not codified)
70035	7- 7-2015	Easement—Authorizes the Mayor and the Comptroller to execute a perpetual streetscape easement with Laurel Transportation Development District		(not codified)
70036	7- 7-2015	Easement—Authorizes the Mayor and the Comptroller to execute a perpetual streetscape easement with The Laurel Master Condominium Association		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70037	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5762 & 5764 McPherson Ave. Redevelopment Area		(not codified)
70038	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3811 Juniata St. Redevelopment Area		(not codified)
70039	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3806 Arsenal St. Redevelopment Area		(not codified)
70040	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3836 Hartford St. & 3831 Wyoming St. Redevelopment Area		(not codified)
70041	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5808-12 Michigan Ave. Redevelopment Area		(not codified)
70042	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6308 & 7100 Michigan Ave. Redevelopment Area		(not codified)
70043	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5414 Alaska Ave. Redevelopment Area		(not codified)
70044	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1817 & 1821-23 S. 9th Street Redevelopment Area		(not codified)
70045	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1923-25 S. 10th St. Redevelopment Area		(not codified)
70046	7- 7-2015	Zoning—Approves an Amended CUP for Washington University Medical Center		(not codified)
70047	7- 7-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2700-06 Cherokee St.		(not codified)
70048	7- 7-2015	Tax—Directs the Treasurer to deposit funds into the City Public Transit Sales Tax Trust Fund -Account One and appropriates $11,032,500 for Bi-State Development Agency		(not codified)
70049	7- 7-2015	Tax—Directs the Treasurer to deposit funds into the City Public Transit Sales Tax Trust Fund -Account Two and appropriates $11,032,500 for Bi-State Development Agency		(not codified)
70050	7- 7-2015	Tax—Appropriates $22,065,000 from the Transportation Trust Fund to Bi-State Development Agency for transportation purposes		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70051	7-16-2015	Streets—Establishes "The 2200 Cherokee Street Residential Parking District;" designates location and restrictions for curb parking in residential parking zones within the District	1—5 Added	17.155.010—17.155.050
70052	7-16-2015	Community Improvement District—Approves the Petition of owners of real property seeking the addition of real property described as the Laclede's Landing Subdistrict to be added to The Downtown St. Louis Community Improvement District		(not codified)
70053	7-16-2015	Sheriff—Repeals Ordinance 69190 & 69929, establishes salaries of employees in the Sheriff's Office	2—2015	4.36.060—4.36.140
70054	7-16-2015	Adopted pursuant to Section 105.483(11) RSMo., reaffirming the provisions in Ordinance 69536 establishing a policy for disclosure of potential conflicts of interest and substantial interests for municipal officials	1—5	4.07.010—4.07.050
70055	7-16-2015	Budget—Authorizes a supplemental appropriation; Amends Ordinance 69985 which is the Budget for FY 2015-16; and appropriates $309,066 from the Parking Division Fund for the operations and expenses of the Treasurer's Office of Financial Empowerment		(not codified)
70056	7-16-2015	Circuit Attorney—Repeals Ordinance 69194 relating to the Circuit Attorney's Office and replaces it with new ordinance relating to salaries	2	4.48.010, 4.48.020
			3—6	4.48.030—4.48.060
70057	7-22-2015	Treasurer—Pertaining to the allocation and approval of the parking funds, amends Section Two of Ordinance 69809	2	3.130.020
70058	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 825-885 East Taylor Ave. Redevelopment Area		(not codified)
70059	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3862 Humphrey St. Redevelopment Area		(not codified)
70060	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Chouteau/Sarah/Papin Redevelopment Area		(not codified)
70061	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1470 South Vandeventer Ave		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70062	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2000 Washington Ave. Redevelopment Plan		(not codified)
70063	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3819 Shaw Blvd. Redevelopment Area		(not codified)
70064	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3447 Humphrey St. Redevelopment Area		(not codified)
70065	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for S. Broadway/Dakota/Osceola/Nebraska Redevelopment Area		(not codified)
70066	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2924 McNair Ave. Redevelopment Area		(not codified)
70067	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1925 Senate St. Redevelopment Area		(not codified)
70068	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2104 Sidney St. Redevelopment Area		(not codified)
70069	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2739 Arsenal St. Redevelopment Area		(not codified)
70070	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3169-71 Iowa Ave. Redevelopment Area		(not codified)
70071	7-22-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4218 S. 37th Street Redevelopment Area		(not codified)
70072	7-22-2015	Vacation—Vacates a portion of Cozen Avenue in CB 3728		(not codified)
70073	7-22-2015	Intergovernmental Agreement—Authorizes the execution of an intergovernmental agreement with the Parking Commission of the City and the Hampton Berthold Transportation Development District and the Hampton Berthold Community Improvement District		(not codified)
70074	7-22-2015	Authorizes and directs the St. Louis Municipal Finance Corporation to procure a loan for the purpose of funding the acquisition and preparation of real property for the western headquarters of the National Geospatial-Intelligence Agency		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70075	7-22-2015	Port—Amends Ordinance 68572; authorizes an extension of time to the Ground Lease; authorizes the execution of a first amendment to a lease agreement between Port, SCF Lewis and Clark Terminals, LLC		(not codified)
70076	7-22-2015	Redevelopment Agreement—authorizes the execution of a redevelopment agreement with Jerry Ackerman Motor Company		(not codified)
70077	7-27-2015	Redevelopment Plan/Project—Approves a redevelopment plan and project; adopts TIF within the area and establishes the Hampton/I-44 Special Allocation Fund		(not codified)
70078	8-28-2015	Minimum Wage Law—Establishes a minimum wage in the City of St. Louis	1—6 Added	15.170.010—15.170.060
70079	7-25-2015	Streets—Directs the Director of Streets to temporarily close traffic at Woodland Avenue at Bircher Blvd.		(not codified)
70080	9- 4-2015	Public Works and Improvement Project—Establishes a public works and improvement project for the Grand Center Great Streets Improvements on Washington Blvd Project and appropriates $1,600,000 from various sources		(not codified)
70081	9- 4-2015	Traffic—Establishes a 4 way stop site for all northbound and southbound traffic on Goodfellow Blvd at Veronica Avenue		(not codified)
70082	9- 4-2015	Public Works and Improvement Project—Establishes a public works and improvement project for the Forest Park Parkway over Metrolink Bridge Replacement Project and appropriating $3,750,000		(not codified)
70083	9- 4-2015	Traffic—Establishes a stop site at McCausland Ave at Tholozan		(not codified)
70084	9- 4-2015	Vacation—Vacates a portion of Hickory Street from Grand Ave.		(not codified)
70085	9- 8-2015	Vacation—Conditionally vacates a portion of River Bluff Place between Broadway and a portion of River Bluff Place		(not codified)
70086	9- 8-2015	Streets—Designates 5500 Block of Page Boulevard as "Bishop James Holloway Blvd."		(not codified)
70087	9-21-2015	Excise—Repeals Ordinance 69095 and enacts new ordinance prohibiting the issuance of package or drink liquor licenses that are currently non-licenses premises in the Fourth Ward Liquor Control District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70088	9-25-2015	Streets—Designates the 3300-3500 blocks of Shreve Avenue between Natural Bridge and Ashland as the "Gilbert Wade Grandberry Avenue"		(not codified)
70089	10- 2-2015	Excise—Repeals Ordinance 70025 and enacts a new ordinance prohibiting the issuance of any package liquor licenses for any currently non-licensed premises within the boundaries of the Fourteenth Ward Liquor Control District		(not codified)
70090	10- 2-2015	Minimum Wage—Amends Ordinance 70078 and the definition of sheltered workshops	1	15.170.010.F
70091	10-13-2015	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute Lease Agreement AL-208 with the State of Missouri on behalf of the National Guard Department of the Army		(not codified)
70092	10-13-2015	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute the Display Advertising Concession Agreement AL-023 with Clear Channel Outdoor, Inc.		(not codified)
70093	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1701 Locust Street		(not codified)
70094	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 405 Washington Ave.		(not codified)
70095	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3865 Humphrey St. Redevelopment Area		(not codified)
70096	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5803-37 Dale Ave. Redevelopment Area		(not codified)
70097	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5213-5215 Bischoff Ave. Redevelopment Area		(not codified)
70098	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 930-36 North Kingshighway Blvd. Redevelopment Area		(not codified)
70099	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3201-3207 Cherokee St. Redevelopment Area		(not codified)
70100	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for Greater Ville Scattered Sites		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70101	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2119 Aresenal St. Redevelopment Area		(not codified)
70102	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2213 Arsenal St. Redevelopment Area		(not codified)
70103	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3448 Crittenden St. Redevelopment Area		(not codified)
70104	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3859 Flora Place Redevelopment Area		(not codified)
70105	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5347-49 Wilson Ave. Redevelopment Area		(not codified)
70106	Signed 10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4028 Botanical Ave. Redevelopment Area		(not codified)
70107	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3940 Shaw Blvd. Redevelopment Area		(not codified)
70108	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for Tower Grove East/ Fox Park Scattered Sites Redevelopment Area		(not codified)
70109	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4092 Robert Ave.		(not codified)
70110	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2201 Cherokee St. Redevelopment Area		(not codified)
70111	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5215 Manchester Ave.		(not codified)
70112	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3661 Hartford St. Redevelopment Area		(not codified)
70113	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3662 Humphrey St. Redevelopment Area		(not codified)
70114	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4168 Juniata St.		(not codified)
70115	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1509 Fairmount Ave. Redevelopment Area		(not codified)
70116	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 700-02 Allen Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70117	10-20-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1601-1723 Delmar Blvd.		(not codified)
70118	10-20-2015	Redevelopment Agreement—Authorizes the execution of an amendment to a Redevelopment Agreement with Tri-Star Imports		(not codified)
70119	10-20-2015	Redevelopment Area—Renews blighting determination of a certain area described generally as the boundaries of or near the Cortex Redevelopment Area		(not codified)
70120	10-20-2015	Agreement—Authorizes the Board of Public Service to execute a construction oversight, Museum Development and Operating Agreement, with the Missouri Historical Society		(not codified)
70121	10-29-2015	Recreation Centers—Revenues derived from sources at 12th and Park, Buder, Cherokee, Gamble, Marquette, Tandy, and Wohl recreation centers shall be held in special fund for making capital improvements to these recreational centers		(not codified)
70122	10-29-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5510-26 Pershing Redevelopment Area		(no codified)
70123	10-29-2015	Quit Claim Deed—Authorizes execution of quit claim deed to Electricians Building Company in CB 981 known as 2732 Dr. Martin Luther King Drive in the amount of $900.00		(not codified)
70124	10-29-2015	Zoning—District map change from "F" to "C" and from "C" and "F" to "C" at 4204 & 4146 Finney and 4202 & 4148-4200 Finney in CB 4563		(not codified)
70125	10-29-2015	Zoning—District map change from "C" and "J" to "F" in CB 4974 at 1607R and 1617 Tower Grove		(not codified)
70126	10-29-2015	Zoning—District map change from "B" to "F" at 4960R Fountain Avenue		(not codified)
70127	10-29-2015	Zoning—District map change from "C" to "G" at 2615, 2617, and 2619 James Cool Papa Bell Avenue and from "C" and "G" to "G" at 1301-13 N. Jefferson		(not codified)
70128	10-29-2015	Zoning—District map change from "A" and "F" to "F" in CB 9115 or 8975 and 8979 Riverview Drive		(not codified)
70129	10-29-2015	Zoning—District map change from "G" to "D" at 2117-31 S. 7th Street		(not codified)
70130	10-29-2015	Zoning—District map change from "G" to "C" at 4232 W Dr. Martin Luther King Drive		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70131	10-29-2015	Zoning—District map change from "C" to "F" at 4110 Evans and 4136 Evans Avenue		(not codified)
70132	11- 3-2015	Taxable Industrial Revenue Bonds—Authorizes the issuance of Taxable Industrial Revenue Bonds (Square Inc. Project) in the amount not to exceed $3,000,000 for the purpose of providing funds to pay the costs of acquiring certain equipment for an industrial development project		(not codified)
70133	11- 9-2015	Grant—Authorizes 2016 Annual Action Plan to the US Department of Housing and Urban Development for funding under various federal programs		(not codified)
70134	11- 9-2015	Circuit Attorney—Authorizes the Circuit Attorney to enter into contract with the United States Department of Justice for funding to create a crime analysis-based diversion project with the Office of the Circuit Attorney and to enter into contract to expend grant funds for the program		(not codified)
70135	11-12-2015	Landmark—Designating 3130 Hickory Street, birthplace of Maya Angelou, as a landmark		(not codified)
70136	11-12-2015	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian traffic in Judith Court from Gasconade to Piedmont Ave		(not codified)
70137	11-12-2015	Streets—Honorarily designates 900 block of Garrison Ave. at Bell Ave. as "Rev. Frederick Lemons Sr. Blvd."		(not codified)
70138	11-12-2015	Streets—Honorarily designates the 1300 block of North Garrison at Sheridan Ave. as "Miss Tillie's Corner"		(not codified)
70139	11-17-2015	Zoning—District map change from "A" to "F" in CB 4403.25 or 4433 Marcus Avenue		(not codified)
70140	11-17-2015	Airport—Authorizes public works project for capital improvements at Lambert-St. Louis International Airport for terminal complexes, concourses parking facilities, taxiways and other airport related improvements for the Airfield, Building and Environs Projects		(not codified)
70141	11-17-2015	Airport—Authorizes public works project for capital improvements at Lambert St. Louis International Airport for the Emergency Building and Environs Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70142	11-17-2015	Airport—Authorizes the transfer of $400,000 from the Debt Service Stabilization Fund to the Airport Development Fund for the purpose of making emergency replacements and repairs under the Emergency Repair and Replacement Project		(not codified)
70143	11-17-2015	Airport—Authorizes and directs the Director to enter into Lease Agreement No. AL-002 with Trico Properties and Investments		(not codified)
70144	11-17-2015	Airport—Authorizes and directs the Director to enter into and execute the Lambert-St. Louis International Airport Electronics Retail Concession Agreement AL-214 with HG-St. Louis JV II		(not codified)
70145	11-17-2015	Airport—Authorizes and directs the Director to enter into and execute the Lambert-St. Louis International Airport Space Permit No. AL-371 with OUTFRONT Media LLC		(not codified)
70146	11-17-2015	Grant—Authorizes and directs the Director of the Department of Human Services to accept a Grant Award from SSM Health Business in the amount of $49,000 for the eHome Project and authorizes expending funds under the Grant Agreement		(not codified)
70147	11-17-2015	Redevelopment Project—Dissolves Special Allocation Fund for the Chemical Building Redevelopment Area and terminating designation of redevelopment area		(not codified)
70148	11-17-2015	Redevelopment Project—Dissolves Special Allocation Fund for the Jefferson Arms Redevelopment Area and terminating designation of a redevelopment area		(not codified)
70149	11-17-2015	Streets—Recommendation by Planning Commission authorizing the renaming of a portion of North 3rd Street to Lumiere Place Boulevard		(not codified)
70150	11-24-2015	Zoning—Amends provisions relating to home occupations under 26.80.060 and 26.98 and 8.07.042(A) and 8.07.42(B); repeals in part Section Twenty-One of Ordinance 59979; repeals Section Three of Ordinance 69084, as amended by Ordinance 69199, Section Two of Ordinance 69084; repeals Section Three of Ordinance 69084 as amended by Ordinance ; repeals Section One and Two of Ordinance 62617	1	26.80.060
			2	26.98.010
			3	8.07.042.A, B

Ordinance Number	Date	Description	Section	Section this Code
70151	11-24-2015	Lease Agreement—Authorizes and directs the Mayor and Comptroller to enter into a Lease Agreement with the Urban League of Metropolitan St. Louis to lease property located in CB 2748 for a period of 10 years with two five year options		(not codified)
70152	11-24-2015	Grant—Authorizes and directs the Mayor to submit all necessary applications and to enter into agreements with the Department of Justice for the Department of Health Byrne Criminal Justice Innovation Program for Near Northside Project BCJI Implementation and to expend grant funds		(not codified)
70153	11-24-2015	Grant—Authorizes and directs the Mayor to submit all necessary applications and to enter into agreements with the Missouri Department of Health and Senior Services for the City's Public Health Emergency Preparedness Ebola LPHA funding and to expend any funds from the grants		(not codified)
70154	11-25-2015	Employee's Retirement System—Repeals Section 2 and 3 of Section 11 of Ordinance 66511, Subsection 5 of Section Fourteen of Ordinance 66511 and Sections Four and Twelve of Ordinance 67963	1	4.16.080.B, C
			2	4.16.060.F
			3, 4	4.16.110.E, J
70155	11-25-2015	Parking Commission—Directing the Treasurer to issue Parking Revenue Bonds, Series 2015B (Tax-Exempt) in the amount not to exceed $48,000,000 and direction other actions as needed for issuance		(not codified)
70156	11-25-2015	Tax Increment Financing—Determines that the TIF plans listed in the exhibit are progressing under the proposed scheduled for completion as planned		(not codified)
70157	11-25-2015	Redevelopment Area/Plan/Project—Designates 4494 Lindell as a redevelopment area for TIF financing; approves a redevelopment plan and project and establishes the 4494 Lindell Special Allocation Fund		(not codified)
70158	11-25-2015	Redevelopment Agreement—Authorizes the execution of a Redevelopment Agreement with Lindell Developer, Inc.; designates Lindell Developer as the developer for the redevelopment area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70159	11-25-2015	Redevelopment Area/Plan/Project—Designates 32 North Euclid as a redevelopment area for TIF financing; approves a redevelopment plan and project and establishes the 32 North Euclid Special Allocation Fund		(not codified)
70160	11-25-2015	Redevelopment Agreement—Authorizes the execution of a Redevelopment Agreement with the North Euclid Developer, Inc.; designates North Euclid Developer as the developer for the redeveloper area		(not codified)
70161	12- 1-2015	Vacation—Vacates Laclede Ave. from Grand to Spring Ave		(not codified)
70162	12- 1-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5626 West Florissant Ave. Redevelopment Area		(not codified)
70163	12- 1-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3600 Bamberger Ave. Redevelopment Area		(not codified)
70164	12-16-2015	Excise—Repeals Ordinance 69874 and enacts a new prohibition of the issuance of any package or drink liquor licenses within the boundaries of the 10th Ward Liquor Control District and contains exceptions		(not codified)
70165	12-16-2015	Zoning—District map change in CB 5239 from "G" to "C" at 5714R Goodfellow Place in CB 5239		(not codified)
70166	12-21-2015	Lease Agreement—Authorizes and directs the execution of the St. Louis Riverfront Stadium Financing, Construction Lease Agreement with Regional Convention and Sports Complex Authority and the State of Missouri		(not codified)
70167	12-22-2015	Excise—Prohibition of issuance of package liquor license for any non-licensed premises within the boundaries of the Twenty-Sixth Ward Liquor Control District		(not codified)
70168	12-23-2015	Vacation—Conditional vacation of north/south alley in CB 109 as bounded by Poplar, Fourth, Cerre, and Broadway		(not codified)
70169	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2268 S. Jefferson Ave. Redevelopment Area		(not codified)
70170	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2242 Shenandoah Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70171	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4020 Russell Blvd. Redevelopment Area		(not codified)
70172	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4309 Gertrude Ave. Redevelopment Area		(not codified)
70173	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6329 Minnesota Ave. Redevelopment Area		(not codified)
70174	12-23-2015	Tax Increment Financing Notes—Authorizes and directs the issuance and delivery of not to exceed $1,500,000 TIF Notes for 4494 Lindell Redevelopment Project		(not codified)
70175	12-23-2015	Tax Increment Financing Notes—Authorizes and directs the issuance and delivery of not to exceed $4,500,000 TIF Notes for 32 North Euclid Redevelopment Project		(not codified)
70176	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4339 Juniata Ave.		(not codified)
70177	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4418-4420 Connecticut Ave.		(not codified)
70178	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2733 January Ave.		(not codified)
70179	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3800 Shaw Blvd.		(not codified)
70180	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4245-59 Lindell Blvd.		(not codified)
70181	12-23-2015	Redevelopment Plan—Approves a blighting study and redevelopment plan for 625 North Euclid Area		(not codified)
70182	12-23-2015	Bonds—Authorizes and directs the issuance, sale and delivery of not to exceed $23,010,000 in General Obligation Refunding Bonds		(not codified)
70183	12-29-2015	Redevelopment Agreement—Authorizes the execution of an amendment to the redevelopment agreement with Carondelet Broadway TIF for the redevelopment of Carondelet Coke Redevelopment Area		(not codified)
70184	1-22-2016	Earnings Tax—Submits to the voters whether to continue the 1% earnings tax for a period of 5 years	1	5.22.023
70185	1-26-2016	Bonds—Ballot measure proposing issuance of bonds for $25 million for infrastructure and equipment		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70186	1-26-2016	Streets—Establishes one-way street on Cottage Avenue from Cora to North Taylor Avenue		(not codified)
70187	1-25-2016	Streets—Temporarily closes, barricades, traffic on Arlington		(not codified)
70188	1-25-2016	Zoning—District map change from "D" to "G" at 1420 North 24th Street and from "D" to "G" to "G" only at 2311-2431 Carr Street and 2300 Cass Avenue in CB 6484 and 6485		(not codified)
70189	1-25-2016	Zoning—District map change from "B" and "F" to "F" in CB 1639 (2748-54 Chippewa Street)		(not codified)
70190	1-27-2016	Streets—Honorarily designates 5000-5400 block of Shreve Avenue as "Reverend Donald Hunter Lane"		(not codified)
70191	2- 2-2016	Grant—Authorizes and directs the Fire Commissioner to enter into and execute a Grant Agreement with the US Department of Homeland Security to fund the 2014 Fire Prevention and Safety Get Alarmed Program		(not codified)
70192	2- 2-2016	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Carnahan Courthouse Leasehold Revenue Refunding Bonds in an amount not to exceed $21,000,000		(not codified)
70193	2- 2-2016	Quit Claim Deed—Authorizes and directs the Mayor and Comptroller to execute a Quit Claim Deed to Myrtle Hilliard Davis Comprehensive Health Centers, Inc.		(not codified)
70194	2- 3-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4626-70, 4625-31, 4647-63 St. Ferdinand Ave.		(not codified)
70195	2- 3-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5301-13 Pershing Ave. Redevelopment Area		(not codified)
70196	2- 3-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4150 Shenandoah Ave.		(not codified)
70197	2- 3-2016	Excise—Repeals Ordinance 70087 prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the Fourth Ward Liquor Control District		(not codified)
70198	2- 3-2016	Redevelopment Plan—Amending to the Grand Center TIF Redevelopment Area Plan, removing certain property from the redevelopment area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70199	2- 3-2016	Bonds—Amends and supplements Ordinance 69893 and authorizes the St. Louis Municipal Finance Corporation to sell one or more series of energy conservation bonds in an aggregate amount not to exceed $4,550,000		(not codified)
70200	2- 8-2016	Quit Claim Deed—Authorizes and directs the Mayor and Comptroller to execute upon receipt and in consideration of the sum of $300.00 to Cassandra Griffin for certain City owned property in CB 3709 also known as 1029 N. Spring		(not codified)
70201	2- 8-2016	Redevelopment Plan/Area/Project—Designates 634 North Grand TIF Redevelopment Area; adopts and approves a redevelopment plan; adopts and approves a redevelopment project; and adopts a tax increment financing within the redevelopment area		(not codified)
70202	2- 8-2016	Redevelopment Plan/Area/Project—Authorizes the execution of a redevelopment agreement with TLG 634 N. Grand LLC; designates TLG 634 N. Grand LLC as the redeveloper of the redevelopment area		(not codified)
70203	2- 9-2016	Lease Agreement—Repeals Ordinance 64210, which authorized a lease agreement with St. Louis Public Schools Gateway Institute of Technology and terminates said lease agreement; authorizes and directs the Mayor and Comptroller to execute a quit claim deed to MSD for property at 5151R Northrup Ave		(not codified)
70204	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2865 Lemp Ave. Area		(not codified)
70205	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4129 Cleveland Ave.		(not codified)
70206	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2618 Lafayette Ave.		(not codified)
70207	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1318 Hodiamont Ave.		(not codified)
70208	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3011 Missouri Ave. Area		(not codified)
70209	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4249 Chouteau Ave.		(not codified)
70210	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 919-21 Ann Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70211	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2217-21 S. 10th St. Redevelopment Area		(not codified)
70212	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1900 and 1908 Lafayette Ave.		(not codified)
70213	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1243 Graham St. Redevelopment Area		(not codified)
70214	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3504 McKean Ave. Redevelopment Area		(not codified)
70215	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3610-12 Bamberger Ave. Redevelopment Area		(not codified)
70216	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2401-05 S. 9th Street Redevelopment Area		(not codified)
70217	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2345 Russell Blvd. Redevelopment Area		(not codified)
70218	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4131 & 4141 Manchester Ave. Redevelopment Area		(not codified)
70219	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3708 Humphrey St. Redevelopment Area		(not codified)
70220	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2123 Marconi Ave. Redevelopment Area		(not codified)
70221	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2821 Oregon Ave. Area		(not codified)
70222	2- 9-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3328 Lemp St. Area		(not codified)
70223	3- 2-2016	Traffic—Prohibit traffic along Russell Boulevard from the east boundary of Seventh Street to the west boundary of Gravois Ave, exempting from said prohibition emergency vehicles and private tow trucks when providing emergency service	1—3 Added	17.68.010.C
70224	3- 2-2016	Streets—Temporarily closes, barricades or impedes traffic on Terry Ave at the west curb line of Kingshighway Memorial Blvd.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70225	3- 2-2016	Traffic—Establishes a stop site for all eastbound and westbound traffic traveling on Page Ave. at Marcus Ave.		(not codified)
70226	3-15-2016	Special Business District—Amends Section Seven of Ordinance 58728, enacting a new Section 7 relating to the Locust Central Business District		(not codified)
70227	3-15-2016	Vacation—Vacates public surface rights for vehicle, equestrian and pedestrian travel in an irregular portion of Children's Place on Taylor		(not codified)
70228	3-15-2016	Vacation—Vacates public surface rights for vehicle, equestrian and pedestrian travel in an irregular portion of Children's Place west of Taylor and adjacent to CB 4781-S		(not codified)
70229	3-15-2016	Vacation—Vacates a portion of air rights for a 15 foot section of Taylor, south of Children's Place, adjacent to CB 3970 and 4781-S		(not codified)
70230	3-15-2016	Vacation—Vacates a portion of surface, above-surface, and sub-surface rights for vehicle, equestrian and pedestrian, on Children's Place, west of Taylor, adjacent to CB 4781-S		(not codified)
70231	3-15-2016	Airport—Transfer of up to $13,727,769 from the Debt Service Stabilization Fund to the Airport Revenue Fund		(not codified)
70232	3-15-2016	Streets—Honorarily 700 block of North Spring Avenue as "Leon Henderson Ave."		(not codified)
70233	3-15-2016	Financing Agreement—Repeals Ordinance 70166 to enter into a financing agreement with the Regional Convention and Sports Complex Authority		(not codified)
70234	3-15-2016	Public Works Project—Establishes a public works project for the Traffic Management Enhancements -Phase 3—including the establishment of a new Real-Time Transportation Intelligence Center at 1915 Olive Street		(not codified)
70235	3-15-2016	Streets—Honorarily designates 4600 Page Avenue as "Rev. Dr. Ronald L. Bobo Sr. Avenue"		(not codified)
70236	3-15-2016	Streets—Honorarily designates 4200 block of Kennerly Ave. as "Bishop Robert J. Ward Avenue"		(not codified)
70237	3-21-2016	Redevelopment Area—Designating specific area as set forth in the ordinance as blighted		(not codified)
70238	3-21-2016	Streets—Temporarily closes, barricades or impedes a portion of traffic on Wabada Avenue		(not codified)
70239	3-21-2016	Streets—Temporarily closes, barricades or impedes a portion of traffic on North Pointe Boulevard		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70240	3-21-2016	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Leasehold Revenue Bonds -Refuse Facility and Municipal Garage Projects in an amount not to exceed $13,000,000 in order to finance or refinance certain projects		(not codified)
70241	3-21-2016	Streets—Temporarily closes, barricades, or otherwise impedes the flow of traffic on Saloma Avenue		(not codified)
70242	3-22-2016	Vacation—Vacates surface and sub-surface rights for vehicle, equestrian and pedestrian travel in a portion of CB 5090		(not codified)
70243	3-22-2016	Quit Claim Deed—Authorizes and directs the Mayor and Comptroller to execute, upon receipt of and in consideration of the sum of $3,000.00 to Vickie Place Inc. property located at 2805 Hickory Street		(not codified)
70244	3-22-2016	Redevelopment Plan—Approves the redevelopment plan for 634 North Grand 353 Redevelopment Area		(not codified)
70245	3-22-2016	Streets—Authorizes designating the location and restrictions for curb parking of residential parking zones within the south side of 3900 Laclede, the "Gerhart Lofts Building Residential Parking District;" including residents of 3900-3914 Laclede; authorizes the placement of "Residential Permit Parking Only" within the District and exempting residential disabled parking permits	1—6 Added	17.160.010—17.160.060
70246	3-22-2016	Streets—Amends Ordinance 66386, codified as 17.101, and expands the Buckingham Court Residential Parking District	1, 2	17.101.010.A
70247	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4500 and 4510 Delmar Blvd.		(not codified)
70248	3-22-2016	Firefighters' Retirement Plan—Repeals Ordinance 69183 as amends Ordinance 69353 and Ordinance 69245	1 Rpld	4.18.060B
			Rnbd	4.18.060A
			as	4.18.060
			3, 4	4.19.010
			5—8	4.19.020
			9	4.19.030
			10—12	4.19.040
			13, 14	4.19.050

Ordinance Number	Date	Description	Section	Section this Code
			15—19	4.19.060
			20—24	4.19.070
			25—27	4.19.080
			28	4.19.090
			29, 30	4.19.100
			31, 32	4.19.110
			33—35	4.19.120
			36—38	4.19.130
			39—41	4.19.140
			42	4.19.160
			43, 44	4.19.170
70249	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3139 Ohio Ave. Area		(not codified)
70250	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3000-3004 Texas Ave. Area		(not codified)
70251	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2813-15 South 18th Street Area		(not codified)
70252	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2862 Wisconsin Ave. Area		(not codified)
70253	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4200 Cleveland Ave.		(not codified)
70254	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4003 Russell Blvd.		(not codified)
70255	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1817 Alfred		(not codified)
70256	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4308-10 Swan Ave.		(not codified)
70257	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4101 Laclede Ave.		(not codified)
70258	3-22-2016	Redevelopment Plan/Agreement—Amends Ordinance #68959 for 1538, 1540, 1562, and 1564 Fairmount Ave. Redevelopment Area		(not codified)
70259	3-22-2016	Board of Aldermen—Requiring certain votes taken by the Board of Aldermen be published online	2 Added	3.06.320
70260	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1817 Lynch Street Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70261	3-22-2016	Real Property—Authorizes and directs the Mayor and Comptroller to purchase and acquire real property and improvements located at 1212-18 and 1401 Central Industrial Drive from Green Street Central Industrial Drive, LLC in the amount not to exceed $11,400,000		(not codified)
70262	3-22-2016	LCRA and PIEA—Amends Section 11.06.370 of the Revised Code relating to tax abatement procedures of the Land Clearance for Redevelopment Authority and Planned Industrial Expansion Authority of the City	1	11.06.370
70263	3-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6105 Delmar Blvd. Redevelopment Area		(not codified)
70264	3-22-2016	TIF—Dissolves the Special Allocation Fund for the Delmar Loop North Redevelopment Area, terminates designation of the Delmar Loop North Redevelopment Area		(not codified)
70265	4- 1-2016	Traffic—Repeals Ordinance 66922 and enacts in lieu thereof a new ordinance that closes, barricades, or otherwise impedes the flow of traffic on a portion of McCausland near Chippewa and other streets		(not codified)
70266	4-22-2016	Zoning—District map change from "A" and "J" to "F" at 7144R Manchester Avenue and 7155 Lanham Avenue		(not codified)
70267	4-22-2016	Zoning—District map change from "A" and "F" to "F" at 1300-22 Hampton Avenue		(not codified)
70268	4-22-2016	CID—Establishes The 705 Olive Community Improvement District and authorizes a Transportation Project Agreement for the 705 Olive Transportation Development District		(not codified)
70269	7- 2-2016	Traffic—Establishes a stop site on Wabash at Lindenwood Place		(not codified)
70270	5- 2-2016	TIF Notes—Authorizes and directs the issuance of $5,514,521 in tax increment revenue notes for 634 North Grand Redevelopment Project		(not codified)
70271	5- 2-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Nathanial Rivers Place Redevelopment Area		(not codified)
70272	6-30-2016	Annual Operating Budget Plan for Fiscal Year 2016-2017—Appropriates payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70273	5-25-2016	Airport—Authorizes and directs the Director of Airports to enter into a Use and Lease Agreement with any airline operator listed in the Attachment		(not codified)
70274	5-25-2016	Traffic—Establishes a four-way stop site at the intersection of Oleatha Avenue and Prather Avenue		(not codified)
70275	5-25-2016	Traffic—Prohibits commercial semi-trailer trucks along portions of Chippewa, Keokuk, Osage, and Kosciusko streets	1—3 Added	17.30.022
70276	5-25-2016	Traffic—Establishes a four-way stop site at the intersection of Sidney and McNair		(not codified)
70277	5-31-2016	Establishes a prescription monitoring program for the prescribing and dispensing of Schedule II, III, and IV controlled substances by professionals	1—10Added	11.59.010—11.59.100
70278	6- 1-2016	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in a portion of Wise and Kingshighway and Brother Thorton Way as well as a portion of the east/west alley in CB 5592		(not codified)
70279	6- 1-2016	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Recreation Sales Tax Leasehold Revenue Refunding Bonds in an aggregate amount not to exceed $43,000,000 and to take certain actions in connection with the issuance of the bonds		(not codified)
70280	6- 1-2016	Real Estate—Repeals Ordinance 70261 and authorizes and directs the Mayor and Comptroller to purchase and acquire real property known as 1212-18 and 1401 Central Industrial Drive from Green Street Central Industrial Drive LLC in the amount not to exceed $7,800,000		(not codified)
70281	6- 3-2016	Tax and Revenue Anticipation Notes—Authorizes the borrowing of funds in anticipation of the collection of tax payments levied by the City for deposit in its General Revenue Fund for the calendar year ending December 31, 2016, and authorizes the issuance of notes		(not codified)
70282	6- 3-2016	Excise—Prohibits the issuance of any 3 a.m. closing permits for any currently non-3 a.m. licensed premises within the boundaries of the Twenty-Fourth Ward Liquor Control District for a period of 3 years		(not codified)
70283	6- 7-2016	Streets—Authorizes the 2016 St. Louis Works and the 50/50 Sidewalk Programs City Wide and appropriates $5,500,000 from the Street Improvement Fund		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70284	6- 7-2016	Excise—Repeals Ordinance 68785 and 69594 which had prohibited the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the Twenty-Second Ward Liquor Control District		(not codified)
70285	6-10-2016	Civil Service Plan-Repeals Ordinance 69949 and includes compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for Deferred Compensation Plan, supersedes any and all provisions of the Police Manual and/or Special Orders of the Police Division inconsistent herewith	1—29Added	4.10.010—4.10.290
			31 Rpld	4.10.010—4.10.300
70286	6-15-2016	Zoning—District Map change in CB 147-149, 150.05, 150.06, 151-152, 153.05, CB 155, CB 156.05, CB 156.06, CB 159, CB 161-162, CB 418-419, CB 422, 429, 461, 462.05, 462.06, 463.03, 463.04, 464.04, 468.05, and 469, from B, D, J and K to I Central Business District		(not codified)
70287	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4403 Gibson Ave.		(not codified)
70288	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1500-04 Salisbury Street		(not codified)
70289	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2324 Virginia Avenue Area		(not codified)
70290	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4030 Russell Blvd		(not codified)
70291	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4104-4164 Detonty Street		(not codified)
70292	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3332-3334 Missouri Avenue & 3310 Lemp Avenue		(not codified)
70293	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3835 Connecticut St. Redevelopment Area		(not codified)
70294	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3657 Wyoming St. Redevelopment Area		(not codified)
70295	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2841 McNair Avenue		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70296	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3429 Missouri Avenue		(not codified)
70297	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1911 Utah St. Area		(not codified)
70298	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2842 Ohio Avenue		(not codified)
70299	6-15-2016	Redevelopment Plan and Agreement—Amends Ordinance Nos. 70159, 70160 and 70175 relating to 32 North Euclid TIF Redevelopment Project		(not codified)
70300	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Amended Tower Grove East/Fox Park Scattered Sites Redevelopment Area		(not codified)
70301	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5859 DeGiverville Ave.		(not codified)
70302	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2246 Shenandoah Ave.		(not codified)
70303	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2243 McNair Avenue		(not codified)
70304	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4227 Swan Ave.		(not codified)
70305	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3722 Tholozan Avenue		(not codified)
70306	6-15-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2105 Ann Avenue Redevelopment Area		(not codified)
70307	6-22-2016	Community Improvement District—Approves the Petition to establish the Grand Center Area Two CID		(not codified)
70308	6-22-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1600-1742 Washington Ave.		(not codified)
70309	6-22-2016	Redevelopment Plan—Amends Ordinance 69450 by modifying the terms of the real estate tax abatement authorized under Ordinance 69450		(not codified)
70310	6-23-2016	Community Improvement District—Establishes the 4101 Laclede CID		(not codified)
70311	6-23-2016	Pertaining to drug-related overdoses and medical assistance and providing immunity from prosecution for possession or control	1—4 Added	11.60.280

Ordinance Number	Date	Description	Section	Section this Code
70312	6-27-2016	Parking Commission—Appropriates payment for the operating expenses, improvement expenses, and debt services in the amount of $16,736,064		(not codified)
70313	6-29-2016	Port—Establishes the Wharf Vending District and a Riverfront Vending District Committee, repeals Ordinance 61362	2 Rpld	21.40.010—21.40.050
			3—7 Added	21.40.010—21.40.050
70314	7- 7-2016	Ballot measure proposing to the qualified voters a proposal to levy and collect a property tax of five cents per one hundred dollars of assessed valuation for the purposes of providing services to persons aged sixty or older		(not codified)
70315	7-14-2016	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian, and pedestrian travel in 17th Street from Washington Ave. to St. Charles Street in St. Louis		(not codified)
70316	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 705 Olive St. Redevelopment Area		(not codified)
70317	7-14-2016	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian, and pedestrian travel in two irregular portions of Shaw between Kingshighway by Vandventer abutting CB 4095 and a portion of CB 4095		(not codified)
70318	7-14-2016	Vacation—Vacates above surface, surface, and sub-surface right for vehicle, equestrian and pedestrian in northern 128 foot section of the 20 foot wide north/south alley in City Block 3210		(not codified)
70319	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1207-25 N. Grand Blvd & 3610-60 Page Blvd. Redevelopment Area		(not codified)
70320	7-14-2016	Quit Claim Deed—Authorizes the Mayor and Comptroller to execute quit claim deed to LCRA for certain City owned land in CB 2316, 2327, 2328, 2347, known as 2535 Cass Avenue, 2337 Madison Street, and 2525, 2526 and 2533 Maiden Lane		(not codified)
70321	7-14-2016	Transparency in Government Law—Amends Ordinance 69707 codified as Ch. 3.115, concerning the requirement to video record all public meetings	1, 2	3.115.040
70322	7-14-2016	Community Improvement District—Establishes the East Loop CID and authorizes the imposition of special assessments		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70323	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3525 Illinois Ave. Area		(not codified)
70324	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3127 Shenandoah Ave. Redevelopment Area		(not codified)
70325	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 801-25 Ann Ave.		(not codified)
70326	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3935-37 Wyoming St. Redevelopment Area		(not codified)
70327	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3637-51 Washington Blvd		(not codified)
70328	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3839 Indiana Ave.		(not codified)
70329	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3944 Michigan Ave.		(not codified)
70330	7-14-2016	Streets—Honorarily designates 5000-5200 blocks of Lotus Avenue as Lou "Fatha" Thimes Avenue		(not codified)
70331	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 721 Victor Street/ 2403-15 S. 7th Street		(not codified)
70332	7-14-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Kosciusko Industrial Site I		(not codified)
70333	7-14-2016	Traffic—Grants the Director of Streets the authority to develop and promulgate the City's Traffic Calming Policy subject to the Board of Public Service approval	1—3 Added	17.04.100
70334	7-14-2016	Vacation—Conditionally vacates above surface, surface and sub-surface rights for vehicles, equestrian and pedestrian travel in a portion of CB 840		(not codified)
70335	7-14-2016	Traffic—Establishes a four-way stop site at the intersection of Walsh and Clifton Avenue		(not codified)
70336	7-14-2016	Recorder of Deeds—Pertains to the employees and salaries of the Office of the Recorder of Deeds, repeals Ordinance 69192	2—11	4.34.010—4.34.100
70337	7-18-2016	Airport—Authorizes and directs the Director and Comptroller to enter into and execute the Lambert St. Louis International Airport Shoeshine Concession Agreement AL-013 with Airport Shoeshine		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70338	7-18-2016	Airport—Authorizes and directs the Director and Comptroller to enter into and execute the Amended Lease Agreement Northern Tract Site (AL-020)		(not codified)
70339	7-18-2016	Airport—Authorizes and directs the Director and Comptroller to enter and execute Lease Agreement No. AL-019 with Southwest Airlines Company		(not codified)
70340	7-17-2016	Civil Service Plan—Pertains to the Civil Service Plan; amends Ordinance 70285 by repealing Section 29 relating to the Police Manuals	1 Rpld	4.10.290
70341	7-18-2016	Streets—Establishes a three-way stop site at the intersection of Marquette Avenue and Prather		(not codified)
70342	7-18-2016	Signs—Prohibits the installation of new pole signs, sandwich signs and limiting number of signs on buildings. Determined to be an invalid law		(not codified)
70343	7-18-2016	Traffic—Amends Ordinance 70238 concerning the permanent closure of traffic flow at Wabada		(not codified)
70344	7-18-2016	Amends Ordinance 70224 and directs the Director of Streets to permanently close traffic at Terry Avenue and Kingshighway at the west curb		(not codified)
70345	7-18-2016	Airport—Authorizes and directs the Director and Comptroller to enter into and execute Space Permit AL-016 with Delta Airlines		(not codified)
70346	7-21-2016	Transit Sales Tax—Directs the Treasurer to deposit funds received pursuant to said sales tax into the City Public Transit Sales Tax Trust Fund—Account One by appropriating $11,132,000 from the said sales tax for the Sales Tax Trust Fund Account One		(not codified)
70347	7-21-2016	Transit Sales Tax—Directs the Treasurer to deposit funds into the City Public Transit Sales Tax Trust Fund -Account Two in the amount of $11,132,000		(not codified)
70348	7-21-2016	Transportation Trust Fund—Appropriates the sum of $22,065,000 from the Transportation Trust Fund to Bi-State Development Agency for transportation purposes		(not codified)
70349	7-21-2016	Authorizes and directs the City to enter into the Fifth Amendment to the Memorandum of Agreement with Bi-State Development Agency of Missouri -Illinois Metropolitan District		(not codified)
70350	7-21-2016	Vacation—Vacates above-surface, surface and sub-surface rights for vehicle, equestrian and pedestrian traffic in a portion of Terrace Ave		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70351	7-21-2016	Development Agreement—Authorizes the execution of a Parcel Development Agreement with Northside Regeneration LLC and St. Louis Grocery Real Estate LLC		(not codified)
70352	9-23-2016	Zoning—District Map change from J to G in CB 3919.03 also known as 3700, 3702, 3702H, 3704 & 3710 Laclede Avenue and 11 and 13 Spring Avenue		(not codified)
70353	9-23-2016	Community Improvement District—Establishes the Bevo Community Improvement District		(not codified)
70354	10-18-2016	Traffic—Stop site at Sulphur at Potomac		(not codified)
70355	10-18-2016	Park—Designates real property at the southsouthwest intersection of Gravois and Morganford as Bosnian Sebilj Park in Bevo		(not codified)
70356	10-18-2016	Bonds—Directs and issues to sell General Obligation Bonds in the amount of $25,000,000 for the purpose of paying for the project of purchasing, replacing, improving, and maintaining the buildings, bridges, and equipment of the City including the acquisition of fire department equipment, Refuse Department equipment, computer hardware and software, bridges, and recreation centers		(not codified)
70357	10-25-2016	Campaign Contributions—Sets forth campaign contribution limits; filing campaign finance disclosure reports; establishes Municipal Officials and Officers Ethics Commission; sets forth duties of the Municipal Officials and Officers Commission; and sets forth a violations and penalty clause	1—10Added	3.72.010—3.72.100
70358	10-25-2016	Airport—Renames airport to St. Louis Lambert International Airport	1, 2	18.04.010
70359	10-25-2016	Parking Commission—Authorizes and directs the supervisor of parking meters to issue parking revenue bonds in the amount of $16,000,000		(not codified)
70360	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2000-2002 Wyoming St. Area		(not codified)
70361	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2723 Allen Ave. Area		(not codified)
70362	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3425 Magnolia Ave. Area		(not codified)
70363	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5378-5390 Southwest Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70364	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5214 Daggett Avenue		(not codified)
70365	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3942 Flad Ave.		(not codified)
70366	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3858 Bamberger Ave.		(not codified)
70367	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5804-08 Westminster Place		(not codified)
70368	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2329 Ann Avenue		(not codified)
70369	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2212-30 Shenandoah Ave.		(not codified)
70370	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5766 Pershing Ave. Redevelopment Area		(not codified)
70371	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4176 Manchester Ave.		(not codified)
70372	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4311, 15, 45, and 58 Hunt Avenue		(not codified)
70373	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1211 Tower Grove Ave		(not codified)
70374	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4230 Chouteau Ave. and 4247 & 4335 Arco Ave.		(not codified)
70375	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1615 Hampton Ave.		(not codified)
70376	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6718 Dale Ave. Redevelopment Area		(not codified)
70377	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for Fox Park/Benton Park West Scattered Sites Redevelopment Area		(not codified)
70378	10-25-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2926-36 Locust Street Redevelopment Area		(not codified)
70379	10- 7-2016	Amends Section Two of Ordinance 63666 Section One of Ordinance 65710 pertaining to reporting of gifts over three hundred and seventy-five dollars	1	4.03.020

Ordinance Number	Date	Description	Section	Section this Code
70380	10-31-2016	2017 Annual Action Plan to HUD for grant funds including CDBG, HOME Investment Partnership, Emergency Solutions Grant and other federal grants and authorizing and directing the Director of CDA to contract with municipal agencies and other non-profit corporations and other necessary acts for the expenditure of the grant funds		(not codified)
70381	10-31-2016	Grant—Authorizes and directs the Director to accept a Grant Award from Missouri Department of Corrections in the amount of $250,000,000 to expend funds for re-entry services for former state offenders		(not codified)
70382	11- 7-2016	Redevelopment Plan—Blights a portion of the City as set forth in Exhibit A of the Ordinance and determines that redevelopment of the area is necessary and in the public interest under Chapter 353		(not codified)
70383	11- 7-2016	Zoning—District Map change from "C" and "H" to "J" in CB 2178, 2181.06 and 2180		(not codified)
70384	11- 7-2016	Community Improvement District—Establishes the Tucker and Cass Community Improvement District		(not codified)
70385	11-10-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4308-4324 Dr. Martin Luther King Blvd.		(not codified)
70386	11-10-2016	Redevelopment Plan—Amends Ordinance 60100 by modifying the terms and termination of the Mill Creek Valley Redevelopment Plan as amended by Ordinance 60100		(not codified)
70387	11-10-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2217 Locust Avenue Area		(not codified)
70388	11-10-2016	Grant—Authorizes and directs the Mayor and Comptroller to enter into and execute the Grant Agreement from HUD for homeless assistance programs in the amount of $336,892.00		(not codified)
70389	11-10-2016	Tax Increment Revenue Notes—Authorizes and directs the issuance and delivery of TIF Notes not to exceed $2,800,000 for the Northside Regeneration - Greenleaf Project		(not codified)
70390	11-10-2016	Public Nuisance Code-Amends the Public Nuisance Code to ensure that victims of domestic violence or stalking are not discriminated against under the nuisance property laws	1	15.42.010
			2	15.42.020

Ordinance Number	Date	Description	Section	Section this Code
			3	15.42.050
70391	11-23-2016	Short-Term Lending Code—Establishes the regulations pertaining to short-term lending institutions	2 Added	8.83A.010—8.83A.200
70392	11-23-2016	Short-Term Loan Establishments—Calls for an election on the issue of charging a $5,000 fee for the issuance of a permit for the operation of short-term loan establishments		(not codified)
70393	11-23-2016	Public Works Project—Establishes a public works and improvement project for the Tower Grove Park Access Improvement Project in the amount of $1,180,000 and authorizes the Board of Public Service to enter into agreements and other such actions in furtherance of the project		(not codified)
70394	11-23-2016	Streets—Authorizes and directs the Street Commissioner to designate the 4600 block of Cleveland Avenue as "Barbara Beck Boulevard"		(not codified)
70395	11-23-2016	Streets—Authorizes and directs the Street Commissioner to take all necessary actions to honorarily designate the 4900 block of Botanical Avenue as George and Sandy Grbac Lane		(not codified)
70396	11-23-2016	Loan Agreement—Authorizes the Director of Streets and Comptroller to enter into and execute a Loan Agreement and other documents with the Missouri Department of Economic/Division of Energy to fund an Energy Loan Program and appropriates $12,000,0000 from the Capital Improvement Fund and authorizes expenditure of said funds by entering into contracts and maintaining an Energy Loan Conservation Account		(not codified)
70397	11-23-2016	Streets—Authorizes and directs the Director of Streets to close, barricade and impede the flow of traffic on Mount Pleasant		(not codified)
70398	11-23-2016	Traffic—Establishes a four-way stop site at the intersection of Nebraska Ave and Itaska Street		(not codified)
70399	11-23-2016	Sale of Tobacco—Amends Chapters 11.32 and 11.76 by repealing and re-enacting Sections 11.32.110, 11.32.120, 11.32.130, 11.32.140, 11.76.010, 11.76.020, 11.76.030, and 11.76.040 and enacting new regulations pertaining to tobacco sales	1 Rpld	11.32.110—11.32.140 11.76.010—11.76.040
			Added	11.32.110, 11.32.120
70400	11-23-2016	Sale of Alternative Nicotine Products—Raises the age to 21 years of age for sales and distribution of alternative nicotine products and vapor products	1—8 Added	11.77.010—11.77.080

Ordinance Number	Date	Description	Section	Section this Code
70401	11-23-2016	Excise—Prohibits the issuance of any 3 a.m. closing permits for any currently non-3 a.m. licensed premises within the boundaries of the 19th Ward Liquor Control District for a period of 3 years		(not codified)
70402	11-23-2016	Excise—Repeals Ordinance 69399 and 69006 and enacts a new ordinance prohibiting the issuance of any package or drink liquor licenses for any currently non-licensed premises within the boundaries of the 18th Ward Liquor Control District		(not codified)
70403	11-29-2016	Redevelopment Project—Amends Ordinance Nos 70076 and 70077 relating to the Northeast Hamptom/I-44 TIF Redevelopment Project		(not codified)
70404	12-19-2016	Legislation—Requires that any proposed board bill which as a cost associated with its passage have a fiscal note prepared	1 Added	1.28.090
70405	12-19-2016	Airport—Authorizes and directs the Director and Comptroller to enter into and execute the Luggage Cart Rental Concession Agreement AL-035		(not codified)
70406	12-19-2016	Tax Increment Fund—Dissolves the Special Allocation Funds for the Grand and Shenandoah Redevelopment Area and terminates the designation of the Grand and Shenandoah Redevelopment Area		(not codified)
70407	12-19-2016	Tax Increment Fund—Dissolves the Special Allocation Funds for the LaSalle Building Redevelopment Area and 500 North Kingshighway Redevelopment Area and terminates the designation of the LaSalle Building Redevelopment Project as a redevelopment area		(not codified)
70408	12-19-2016	Terminates a MODESA Development Plan, Downtown St. Louis Core Development and Streetscape Enhancements Development Area and the designation of the development area as approved by Ordinance 67320		(not codified)
70409	12-19-2016	Airport—Transfer of $1,300,000 of excess moneys to the Debt Service Stabilization Fund		(not codified)
70410	12-19-2016	Airport—Establishes and authorizes a public works and improvement program for capital improvement projects to and for the terminal complexes, concourses, parking, taxiways, and runways and other associated Airport buildings and facilities		(not codified)
70411	12-19-2016	Airport—Establishes a public works project for the Lambert Airport Road Traffic Flow Improvement Along Lambert International Blvd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70412	12-19-2016	Airport—Authorizes and directs the Director of Airports to enter into execute the First Amendment to Wine Concession Agreement AL-354 with City and Taste Inc.		(not codified)
70413	12-29-2016	Quit Claim Deed—Authorizes and directs the Mayor and Comptroller to execute a Quit Claim Deed to Mr. Michael F. Daniels and Ms. Ursula L. Thatch in CB 5427 known as 6001-7 Pershing Avenue in the amount of $15,000.00		(not codified)
70414	12-29-2016	Redevelopment Plan—Amends Ordinance #70060 by modifying terms of the real estate tax abatement of the Chouteau Ave./Sarah St./Papin St. Redevelopment Plan		(not codified)
70415	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3530 Wyoming St.		(not codified)
70416	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3442 Missouri Ave		(not codified)
70417	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3006 Missouri Ave. Area		(not codified)
70418	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2861 Lemp Ave. Area		(not codified)
70419	12-29-2016	Lease Agreement—Authorizes and directs the Mayor and Comptroller into a Lease Agreement with Sun Ministries to lease property located in CB 2437 for a period of 99 years for the purposes of creating a mixed use service delivery facility and other self-improvement activities as well as office space for administrative needs		(not codified)
70420	12-29-2016	Development Plan, Development Area and Development Project—Authorizes and directs the execution of a First Amendment to Development Agreement with the City and Ballpark Village Development Corporation		(not codified)
70421	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4398 Chouteau Ave.		(not codified)
70422	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 916-26 Talmage Ave. and 4307 Chouteau Ave.		(not codified)
70423	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 501-09 Olive Street and 303 N. Broadway		(not codified)
70424	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2920 Cherokee St.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70425	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6654-56 Mitchell Ave. Redevelopment Area		(not codified)
70426	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3400 Meramec St. Redevelopment Area		(not codified)
70427	12-29-2016	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2901-2909 Indiana Ave.		(not codified)
70428	12-29-2016	Redevelopment Plan/Area/Agreement—Approves redevelopment plan for the Midtown 353 Redevelopment Area, confirming findings that the redevelopment area blighted and authorizes agreement with developer		(not codified)
70429	1-20-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1501-09 Washington Ave. Redevelopment Area		(not codified)
70430	1-20-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4056 Detonty St.		(not codified)
70431	1-20-2017	Redevelopment Plan/Area/Project—Designation of redevelopment area known as The City Foundry Saint Louis Redevelopment Area; adopts TIF financing; establishes The City Foundry Saint Louis Special Allocation Fund		(not codified)
70432	1-20-2017	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with FoPa Partners LLC; designates FoPa Partners as the developer of the redevelopment area		(not codified)
70433	2- 3-2017	Ballot measure to establish a City resident hiring preference system by adding Paragraph (f) to Section 4 of Article XVIII of the Charter	4	Charter, art. XVIII, § 4(f)
70434	2- 3-2017	Ballot measure to use the proceeds of the one half of one percent increase in the local use tax levied by the City for the funding of minority job training and business development programs, and a multipurpose stadium for soccer		(not codified)
70435	2- 3-2017	Ballot measure to submit to the qualified voters a proposal to impose a one half of one percent sales tax on all retail sales made in the City for economic development purposes		(not codified)
70436	2- 3-2017	City Courts—Amends Section Two of Ordinance 56787 pertaining to miscellaneous fees or surcharges imposed by the City Courts and provides for the assessment of a four dollar fee imposed by City Courts for the payment of court costs by means other than cash or negotiable instrument	2	3.08.240

Ordinance Number	Date	Description	Section	Section this Code
70437	2- 3-2017	Streets—Honorarily designates 2800 block of Cool Papa Bell Avenue as Pastor Jerry Hodges Street		(not codified)
70438	2- 3-2017	Streets—Honorily designates the 3600 block of Finney Avenue as Rev. Dr. Jimmy L. Brown Street.		(not codified)
70439	2- 3-2017	Traffic—Establishes a stop site at Mardel and Clifton		(not codified)
70440	2- 8-2017	Grant—Authorizes the City to enter into and execute an agreement with the HUD in the amount of $29,500,000 and authorizes the Director of CDA to contract with municipal agencies and non-profit corporations for the expenditure of Choice Neighborhoods Implementation Funding		(not codified)
70441	2- 8-2017	Traffic—Prohibits commercial semi-trailer trucks along portions of Morganfield Road	1	17.30.022
70442	2- 8-2017	Zoning—District Map change in CB 971 at 2601 Dayton Street from "C" and "G" to "C" Multiple-Family Dwelling District only		(not codified)
70443	2- 8-2017	Zoning—District Map change from "A" and "F" to "F" only in CB 5753.05 or 4650 Hampton Ave. and 4601-21 Sulphur Avenue		(not codified)
70444	2- 8-2017	Zoning—District Map change from "J" to "E" Multi-family Dwelling District in CB 784 or 1302-24 and 1324R Russell BLV & 2128 Dolman Street		(not codified)
70445	2- 8-2017	Excise—Repeals Ordinance 69589 and enacts a new ordinance that prohibits the issuance of package or drink liquor for any currently non-licensed premises within the boundaries of the 19th Ward Liquor Control District		(not codified)
70446	2- 8-2017	Airport—Authorizes the transfer of $13,727,769 of excess moneys from the Debt Service Stabilization Fund to the Airport Revenue Fund		(not codified)
70447	2- 8-2017	Airport—Authorizes and directs the Director and Comptroller to enter into and execute Cargo City Lease Agreement AL-030		(not codified)
70448	2- 8-2017	Zoning—District Map change from "C" to "G" at 3869, 3871, 3873, 3881, 3883-85 and 3887 Bell Avenue and 3870, 3974, 3878-82, 3884, 3886, & 3888 Windsor Place in CB 2513		(not codified)
70449	2- 8-2017	Zoning—Amends the Greater Ville Special Use District created by Ordinance 68619 to prohibit motor fuel pumping stations and convenience stores and confectionaries		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70450	2- 8-2017	Circuit Attorney—Repeals Ordinance 70056 relating to the Office of the Circuit Attorney; setting minimum and maximum salaries for such grades by repealing Section Two and replacing said Section with the provisions of this ordinance	2	4.48.010, 4.48.020
			3—6	4.48.030—4.48.060
70451	2- 8-2017	Airport—Authorizes and directs the Director and Comptroller to enter into and execute an Agreement and Contract for Sale of Property with the City of Kinloch		(not codified)
70452	2- 8-2017	Airport—Authorizes and directs the Director and the Comptroller to enter into and execute an Agreement and Contract of Sale of Property with Metropolitan Missionary Baptist Church		(not codified)
70453	2- 8-2017	Airport—Authorizes and directs the Director and the Comptroller to enter into and execute the "Second Amendment to Lease Agreement AL-226" with Jet Linx St. Louis LLC		(not codified)
70454	2- 8-2017	Airport—Authorizes and directs the Director and the Comptroller to enter into and execute the Assignment and Assumption of Interest in Dual Customs Agreement and Consent with Brownsville International Air Cargo		(not codified)
70455	2- 8-2017	Community Improvement District—Establishes the 501 Olive Community Improvement District and authorizes the execution of a Transportation Development District		(not codified)
70456	2- 8-2017	City Housing Conservation Program—Amends Section Eleven of Ordinance 67914, pertaining to utility service notifying the City of a change or disconnection of residential electric or gas service	1	25.56.100
70457	2- 8-2017	Parking—Establishes the "Chouteau-Newstead Parking District" and the "Taylor-Chouteau Tower Grove Parking District" and establishes regulations and permit parking only	1—5 Added	17.165.010—17.165.050
70458	2-15-2017	Quit Claim Deed—Repeals Ordinance 69926 and authorizes the sale of certain real property in CB 661E and authorizes and directs the Mayor and Comptroller to execute, upon receipt and valuable consideration of the sum of $172,133.00 a quit claim deed for certain City-owned land in CB 661E		(not codified)
70459	2-13-2017	Prohibits discrimination on a person's reproductive health decisions or pregnancy	1—4 Added	18.175.010—18.175.040

Ordinance Number	Date	Description	Section	Section this Code
70460	2-15-2017	Development Agreement—Approves and authorizes the execution of an Amendment to the Development Agreement with the City and Hallmark Hotels		(not codified)
70461	2-15-2017	Community Improvement District—Establishes the Cherokee Community Improvement District		(not codified)
70462	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5092 Milentz Ave. Redevelopment Area		(not codified)
70463	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1519 Tower Grove Ave.		(not codified)
70464	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4101-4117 Manchester Ave.		(not codified)
70465	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4140 & 4145 Park Ave.		(not codified)
70466	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1302-24, 1314R Russell Blvd. & 2128 Dolman St.		(not codified)
70467	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3305 Winnebago St.		(not codified)
70468	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for Chippewa Park Scattered Sites Redevelopment Area		(not codified)
70469	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5814 West Park Ave. Redevelopment Area		(not codified)
70470	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1828 Victor Street Area		(not codified)
70471	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2720 Indiana Ave. Area		(not codified)
70472	2-15-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3901-3905 Shaw Blvd. and 3866-3868, 3900-3904 Detonty St.		(not codified)
70473	2-15-2017	Financing Agreement—Authorizes and directs the execution and delivery of a Financing Agreement with the 14th and Market Community Improvement District and LCRA for the Scottrade Center		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70474	2-16-2017	Building Energy Awareness-Establishes energy benchmarking and reporting requirements for certain buildings	1—7 Added	25.70.010—25.70.070
70475	2-16-2017	Whistleblower Law—Establishes the whistleblower law for improper governmental action and provides protection from retaliatory action for reporting and cooperating in the investigation and/or prosecution of improper governmental action and retaliation	1—7 Added	15.14.010—15.14.070
70476		Zoning—District Map change from "J" to "D" in CB 4085 or 5006-30 Daggett Avenue in CB 4085		(not codified)
70477		Redevelopment Plan—Approves a blighting study and redevelopment plan for 5006-30 Daggett Ave.		(not codified)
70478	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in Rutger Street from Grand Ave. to a westwardly point		(not codified)
70479	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in CB 2181-N as bounded by LaSalle, Motard, Hickory St., and Spring		(not codified)
70480	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in an alley in CB 2181-S as bounded by Hickory Street, Grand Ave., Rutger and Spring		(not codified)
70481	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in an alley in CB 441 as bounded by Papin, Tucker, Chouteau and 13th Street		(not codified)
70482	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in alley in CB 74 as bounded by Lombard, 3rd, Chouteau, and 4th Street		(not codified)
70483	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in Kemper from Hereford		(not codified)
70484	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in an alley in CB 1044 as bounded by Samuel Shepard Dr., Leonard Ave., Washington Blvd and Josephine Baker Blvd.		(not codified)
70485	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in portion of Sublette Avenue from Wise		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70486	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in an alley in CB 527 as bounded by Delmar, 14th Street, Lucas and 15th Street		(not codified)
70487	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in a portion of an alley in CB 940 as bounded by Dr. MLK Drive, 20th Street, Delmar and 21st Street		(not codified)
70488	2-17-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicles, equestrian and pedestrian travel in portion of an alley in CB 5066 at Kraft Street to a point bounded by Wise, Louisville, West Park and Kraft		(not codified)
70489	2-17-2017	Redevelopment Plan/Blighting Study—Approves amendments to a blighting study and plan for Eleventh/Clark/Eighth/Poplar Area		(not codified)
70490	2-17-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6201 Delmar Blvd. Redevelopment Area		(not codified)
70491	2-17-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5217 Botanical Ave. Area		(not codified)
70492	2-17-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5214 Wilson Ave. Area		(not codified)
70493	2-17-2017	Redevelopment Plan/Project—Adopts and approves a redevelopment plan and approves a redevelopment project; adopts TIF financing within the area; and establishes the Northgate Special Allocation Fund		(not codified)
70494	2-17-2017	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with Pace-Delmar Associates, LLC and designating Pace-Delmar Associates as developer of the redevelopment area		(not codified)
70495	2-17-2017	Tax Increment Financing Redevelopment Plan—Adopts an amended and restated A&R TIF Plan for the St. Louis Innovation District		(not codified)
70496	2-17-2017	Redevelopment Area/Plan/Project—Affirms designation of the Armory District Redevelopment Area; approves a redevelopment plan and project and adopts TIF financing within the redevelopment area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70497	2-17-2017	Redevelopment Agreement—Affirms the designation of the redevelopment area and projects and authorizes the execution of a redevelopment agreement with Green Street Development Group LLC		(not codified)
70498	2-17-2017	Redevelopment Agreement—Authorizes the execution of an amendment to the redevelopment agreement with Carondelet Broadway TIF for the redevelopment of the Carondelet Coke Redevelopment Area		(not codified)
70499	2-17-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2232-56 S. Grand Blvd. Redevelopment Area		(not codified)
70500	2-17-2017	Redevelopment Plan/Area/Project—Designates the Jefferson Arms Redevelopment area as a redevelopment area under TIF, adopts and approves a redevelopment plan and project, adopts TIF financing; establishes the Jefferson Arms Special Allocation Fund		(not codified)
70501	2-17-2017	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with Alterra Jefferson Arms LLC		(not codified)
70502	2-21-2017	Firearms—Requires stolen guns to be reported to the SLMPD	1—4 Added	15.133.010—15.133.040
70503	2-21-2017	Traffic—Establishes a four-way stop site at the intersection of Indiana Avenue and Pestalozzi Street		(not codified)
70504	2-21-2017	Traffic—Establishes a four-way stop site at the intersection of Field Avenue and Blow Street		(not codified)
70505	2-21-2017	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell its Leasehold Revenue Refunding Bonds in order to refund all or a portion of its outstanding Refunded Bonds and its Leasehold Revenue Improvement Bonds to fund improvements and repairs to the Cervantes Convention Center in the amount not to exceed $30,000,000		(not codified)
70506	2-21-2017	Grant—Authorizes and directs the Fire Commissioner to enter into and execute a Grant Agreement with the US Department of Homeland Security, FEMA, Assistance to Firefighters Grant to fund the 2015 Fire Operation and Safety Grant		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70507	2-21-2017	Authorizes the expenditure of funds from the Secretary of State to provide assistance to local election authorities to improve election processes with state funds to assist with election activities, systems and equipment maintenance, equipment purchases and maintaining voter lists and polling place accessibility		(not codified)
70508	2-21-2017	Community Improvement District—Establishes the Armory Community Improvement District and authorizes imposition of district sales tax		(not codified)
70509	2-21-2017	Financing Agreement—Authorizes and directs the execution of a Stadium Project Financing, Construction and Lease Agreement		(not codified)
70510	2-21-2017	Community Improvement District—Establishes the Kings-Oak Community Improvement District		(not codified)
70511	2-21-2017	Municipal Court Operations	1 Added	1.12.045
			2 Rpld	17.52.260, 17.53.070
70512	2-21-2017	50/50 Sidewalk Program—Authorizes the 2017 St. Louis Works and the 50/50 Sidewalk Programs City Wide and appropriates $5,400,000.00 from the Street Improvement Fund		(not codified)
70513	2-21-2017	Repeals Ordinance No. 70419 and enacts a new ordinance that authorizes the lease of certain real property owned by the City located in CB 2437 and authorizes and directs the Mayor and Comptroller to enter into and execute a lease agreement with Sun Ministries		(not codified)
70514	2-21-2017	Pertaining to witness tampering and prohibits witness tampering	1—3 Added	15.180.010—15.180.030
70515	2-21-2017	Authorizes Police Division Sergeant Bargaining Unit between the City and St. Louis Police Officers Association/Fraternal Order of Police, Lodge 68		(not codified)
70516	2-23-2017	Prohibits the use of smokeless tobacco, alternative nicotine products or vapor products at professional, collegiate, high school and organized amateur sporting events	1—5 Added	11.77.090
70517	3- 2-2017	Cooperation Agreement—Authorizes the execution of a cooperation agreement and authorizes reimbursement in accordance with the agreement with 705 Olive LLC		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70518	3- 2-2017	Tax Increment Financing Plans—Determination by the Board of Aldermen that the tax increment financing plans listed in the exhibit are making satisfactory progress under the proposed time schedule		(not codified)
70519	3- 2-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 100 N. Kingshighway Blvd. Redevelopment Area		(not codified)
70520	3- 2-2017	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell the Corporation's City Justice Center Leasehold Revenue Refunding Bonds and other actions relating to the issuance of the bonds		(not codified)
70521	3- 2-2017	Bonds—Authorizes and directs the St. Louis Municipal Finance Corporation to issue and sell Police Capital Improvement Sales Tax Leasehold Refunding Revenue Bonds and other actions relating to the issuance of the bonds		(not codified)
70522	3- 2-2017	TIF Agreement—Authorizes and directs the Mayor and Comptroller to execute the First Supplemental Financing Agreement relating to the I-55/Loughborough Redevelopment Project		(not codified)
70523	3- 2-2017	Ordinance requiring employers to provide unpaid leave for victims of domestic violence, sexual violence and stalking	1—8 Added	11.100.010—11.100.080
70524	3- 2-2017	Vacation—Vacates above surface, surface and sub-surface rights for vehicle, equestrian, and pedestrian travel in several streets and alleys bounded by St. Louis Ave., 22nd St., Cass and Jefferson Ave./Parnell		(not codified)
70525	3- 2-2017	Parcel Development Agreement—Authorizes the execution of a Parcel Development Agreement with Northside Regeneration LLC and Northside Urgent Care Property LLC		(not codified)
70526	3- 2-2017	Tax Increment Finance Notes—Authorizes and directs the issuance and delivery of Tax Increment Finance Notes not to exceed $6,420,000 plus issuance cost for Northside Regeneration Initial Hospital and $1,580,000 plus issuance cost for Northside Regeneration—Expansion Hospital Facility		(not codified)
70527	3- 2-2017	Tax Increment Financing Notes—Authorizes and directs the issuance and delivery of not to exceed $4,374,377 plus issuance costs for Northgate Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70528	3- 2-2017	Redevelopment Agreement—Authorizes the execution of an Amended and Restated Redevelopment Agreement with the St. Louis Innovation District LLC		(not codified)
70529	3- 2-2017	Third Supplemental Trust Indenture—Authorizes and directs the Mayor and Comptroller to execute and deliver the Third Supplemental Trust Indenture with UMB Bank pertaining to the St. Louis Innovation District		(not codified)
70530	3- 2-2017	Tax Increment Financing Notes—Authorizes and directs the issuance and delivery of TIF Notes not to exceed $12,200,000 plus costs of issuance for certain Reimbursable Redevelopment Project Costs associated with Redevelopment Project Area 5 of the St. Louis Innovation District Redevelopment Area		(not codified)
70531	3- 2-2017	Entertainment License Tax—Amends Ordinance 68380 pertaining to entertainment license tax codified as 8.08 by creating a new subclass of taxpayers and fixing a tax rate for the subclass	2	8.08.010
70532	3- 2-2017	Civilian Oversight Board—Amends Ordinance 69984 by extending the number of days that the St. Louis Civilian Oversight Board has to review complaints and make recommendations	1	3.140.060
70533	3- 2-2017	Streets—Authorizes and directs the Director of Streets to temporarily close, barricade or impede traffic on Enright Avenue		(not codified)
70534	4-17-2017	Zoning—District Map change from C and F to E at 1322-32 Dolman Street in CB 483.03		(not codified)
70535	4-17-2017	Zoning—District Map change from B and J to B in CB 1648 at 3627 and 3635 S. Jefferson Avenue		(not codified)
70536	4-17-2017	Budget for FY 2016-2017—Authorizes and supplement appropriation by amending Ordinance 70272 for a charity bail fund		(not codified)
70537	4-17-2017	Zoning—District map change from "B" and "F" to "F" only in CB 4455 at 4967-71 Palm Street		(not codified)
70538	4-17-2017	Tax Increment Financing Notes—Authorizes and directs the issuance of TIF Notes in the amount of $20,000,000 plus issuance for the Jefferson Arms Redevelopment Project		(not codified)
70539	4-17-2017	Zoning—District Map change from "A" to "F" in CB 5090 at 4547, 4901, 4903, 4905, and 4909 Geraldine Avenue		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70540	6-30-2017	Annual Operating Budget Plan for Fiscal Year 2017-2018—Appropriates payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
70541	5-23-2017	Airport—Issuance of revenue refunding bonds for St. Louis Lambert International Airport		(not codified)
70542	5-30-2017	Traffic—Establishes a three-way stop sign at Neosho and Adkins		(not codified)
70543	5-30-2017	Traffic—Establishes a three-way stop sign at Hoffman Ave. and Clifton Ave.		(not codified)
70544	5-30-2017	Traffic—Establishes a three-way stop sign at Berthold and Graham Street		(not codified)
70545	6- 6-2017	Tax and Revenue Anticipation Notes—Authorizes the borrowing of funds in anticipation of collection of tax payments and issuance of notes		(not codified)
70546	6- 9-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in CB 1228-E as bounded by Penrose, Broadway, Angelica, and I-70		(not codified)
70547	6- 9-2017	Airport—Authorizes the execution of lease agreement with Enterprise Leasing Company of STL, LLC		(not codified)
70548	6- 9-2017	Airport—Authorizes the execution of City the Common Use Airport Club Concession Agreement AL-048 with Airport Terminal Services		(not codified)
70549	6- 9-2017	Airport—Authorizes the execution of AL-044 Lease Agreement with Union Electric Company		(not codified)
70550	6- 9-2017	Traffic—Establishes a three-way stop at Taylor and Kennerly Ave.		(not codified)
70551	6- 9-2017	Traffic—Establishes a two-way stop sign at Chippewa and Marine Ave.		(not codified)
70552	6-13-2017	Streets—Honorarily designates a section of St. Louis Avenue as Reginald D. Rogers Sr. Avenue		(not codified)
70553	6-13-2017	Vacation—Vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in CB 3965 bounded by Papin, Sarah, Chouteau, and Talmage		(not codified)
70554	6-17-2017	Zoning—District Map change from "B" and "J" to "G" Local Commercial and Office District in CB Block 4616 also known as 6510 Mitchell Avenue		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70555	6-17-2017	Single Family Dwelling District—Repealing Section Three of Ordinance 62588, codified as Chapter 26.20 of the Revised Code of the City of St. Louis, pertaining to the "A" Single Family Dwelling District, and enacting a new Chapter in lieu thereof; repealing, in part, Section Twenty-One of Ordinance 59979, codified as Section 26.80.040 of the Revised Code of the City of St. Louis, pertaining to conditional uses, and enacting in lieu thereof a new section on the same subject matter to be codified as Section 26.80.040; repealing Section Two of Ordinance 67607, codified as Chapter 26.48 of the Revised Code of the City of St. Louis, pertaining to the "H" Area Commercial District, and a enacting in lieu thereof a new Chapter on the subject matter; amending, in part, Section Twenty-Six of Ordinance 59979, codified as Section 26.100.010 of the Revised Code of the City of St. Louis and pertaining to the penalty for violations, and enacting in lieu thereof a new Section on the same subject matter to be codified as Section 26.100.010	1	26.20.010—26.20.90
			2	26.80.040
			3	26.48.010—26.48.050
			4	26.100.010
70556	6-17-2017	Zoning—District Map change in CB 9121 from A to H at 11050 and 11110-80 Riverview Drive aka 11110R, 11110-80 & 11192 Riverview Drive		(not codified)
70557	6-17-2017	Zoning—Establishes the Lighthouse Area Special Use District		(not codified)
70558	6-17-2017	Excise—Prohibition of the issuance of package or drink liquor licenses for currently unlicensed premises within the First Ward		(not codified)
70559	6-21-2017	Community Improvement District—Repeals Ordinance 68830 and approves the petition to establish the Dutchtown Community Improvement District and imposes special assessments and retail sales tax		(not codified)
70560	6-21-2017	Streets—Closes, barricades and impedes the flow of traffic on Mardel west of Hampton		(not codified)
70561	6-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3827 Shaw Blvd		(not codified)
70562	6-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1301-03 S. Boyle Ave.		(not codified)
70563	6-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4401 Gibson Ave.		(not codified)
70564	6-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4443 Oakland Ave. Area		(not codified)
70565	6-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2607 California Ave. Area		(not codified)
70566	6-30-2017	Community Improvement District—Amends Petition for the Creation of the 14th and Market CID		(not codified)
70567	6-30-2017	Parking Commission—Appropriations for operating expenses involving Parking Division assets and debt service expenses		(not codified)
70568	7- 5-2017	Quit Claim Deed—Authorizes execution of Quit Claim deed to McGrath & Assoc. for City property owned at 1920 S. Kingshighway		(not codified)
70569	7- 6-2017	Recovery of Stolen Automobiles—Protecting victims of automobile theft from paying storing, towing and administrative fees directly related to recovery of a stolen automobile by amending Ordinance 64668, approved June 11, 1999	1(5)	17.63.040
			1(6)	17.63.050
			1(7)	17.63.060

Ordinance Number	Date	Description	Section	Section this Code
70570	7-10-2017	Airport—Establishes a public works and improvement program for St. Louis Lambert International Airport and appropriates fund for project		(not codified)
70571	7-10-2017	Traffic—Establishes a four-way stop site at Oregon and Cherokee Street		(not codified)
70572	7-10-2017	Traffic—Establishes a four-way stop site at Louisiana and Potomac		(not codified)
70573	7-10-2017	Excise—Repeals Ordinance 69864 and enacts new ordinance prohibiting the issuance of any package or drink liquor licenses for currently non-licensed establishments in the Third Ward Liquor Control District		(not codified)
70574	7-10-2017	Redevelopment Plans—Repeals Ordinance Nos. 54425, 58949 and 63534 which had approved Development and Redevelopment Plans for Mullanphy Urban Development Area, Montgomery Industrial Area and Madison Acres Area		(not codified)
70575	7-16-2017	Quit Claim Deed—Authorizes execution of quit claim deed in the amount of $1,200 to FOPA Partners LLC for property located in CB 2198 known as 3699 Market Street		(not codified)
70576	7-16-2017	Transit Sales Tax—Directs Treasurer to deposit funds received from City Public Transit Sales tax in the amount of $11,560,000 into Account One and appropriating the sum for Bi-State Development Agency for certain purposes		(not codified)
70577	7-16-2017	Transit Sales Tax—Directs Treasurer to deposit funds received from the City Public Transit Sales tax in the amount of $11,560,000 into Account Two and appropriates the same sum for Bi-State Development Agency for certain purposes		(not codified)
70578	7-16-2017	Transportation Trust Fund—Appropriates $21,877,000 out of the Transportation Trust Fund for Bi-State Development Agency for transportation purposes		(not codified)
70579	7-14-2017	Trash Task Force Fee—Relating to the Solid Waste Services Fee established under Ordinance No. 68698, authorizing an increase to said fee of three dollars ($3.00) per month per dwelling unit, and appropriating funds for the provision of Solid Waste Removal and Disposal Services as detailed in Exhibit A commencing with the fiscal year beginning July 1, 2017	1	11.02.127
70580	7-14-2017	Approved by the voters on November 7, 2017 Tax—Approves a one-half of one percent sales tax on all retail sales in the City pursuant to Section 67.547 RSMo.		(not codified)
70581	7-18-2017	Corrections—Requires the Corrections Commissioner to post a quarterly report on the City's Division of Corrections website regarding administrative segregation of inmates at city detention centers		(not codified)
70582	7-18-2017	Tax Increment Revenue Notes—Authorizes and directs issuance and delivery of tax increment revenue notes for City Foundry Saint Louis TIF		(not codified)
70583	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4427 Chouteau Ave		(not codified)
70584	7-18-2017	Redevelopment Plan—Amends Ordinance 66107 by modifying the terms of the real estate tax abatement in the 1513-23 S. Compton Ave. and 3201-27 Vincent Ave. Redevelopment Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70585	7-18-2017	Community Improvement District—Petition for the addition of certain real property for the Forsyth Associates Community Improvement District; establishes the Expanded Forsyth Associates Community Improvement District		(not codified)
70586	7-18-2017	Community Improvement District—Establishes the City Foundry Community Improvement District		(not codified)
70587	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Taylor/Delmar/Page/Kingshighway Redevelopment Area		(not codified)
70588	7-18-2017	Redevelopment Plan—Amends Ordinance 69416 by modifying the terms of the tax abatement in the 2325 Ann Ave. Redevelopment Area		(not codified)
70589	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3904 Folsom Ave.		(not codified)
70590	7-18-2017	Industrial Development Revenue Bonds—Directs issuance of Taxable Industrial Revenue Bonds (Huvepharma Inc. Project) in an amount not to exceed $20,700,000 for improving an industrial development project in the City		(not codified)
70591	7-18-2017	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in a portion of CB 4649-A		(not codified)
70592	7-18-2017	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in a portion of CB 483-E		(not codified)
70593	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for the 4025 Shreve Ave.		(not codified)
70594	7-18-2017	Vacation—Conditionally vacates above surface, surface and sub-surface vehicular, equestrian and pedestrian traffic in an alley in CB 2485		(not codified)
70595	7-18-2017	Redevelopment Area/Plan/Project—Establishes and designates the 6300 Clayton Avenue Redevelopment Area and adopts a redevelopment plan and project and establishes tax increment financing within the redevelopment area		(not codified)
70596	7-18-2017	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with Hibernia Dogtown Development		(not codified)
70597	7-18-2017	Tax Increment Revenue Notes—Authorizes and directs the issuance of TIF notes not to exceed $3,800,000 plus issuance costs for 6300 Clayton Avenue Redevelopment Project		(not codified)
70598	7-18-2017	Redevelopment Area/Plan/Project—Establishes and designates Municipal Courts Building Hotel Redevelopment Area and adopts a redevelopment plan and project and establishes tax increment financing within the redevelopment area		(not codified)
70599	7-18-2017	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with MCB Hotel Owner, LLC		(not codified)
70600	7-18-2017	Tax Increment Revenue Notes—Authorizes and directs the issuance of TIF notes not to exceed $9,870,000 plus issuance costs for the Municipal Court Building Hotel Redevelopment Project		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70601	7-18-2017	Streets—Authorizes that a portion of Windsor Place be designated the honorary street name of Justine M. Peterson Pathway		(not codified)
70602	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for Cook Ave. & Finney Ave. Scattered Sites Redevelopment Area		(not codified)
70603	7-18-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3118 Watson Road		(not codified)
70604	7-18-2017	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicular, equestrian, and pedestrian traffic in a portion of CB 5304		(not codified)
70605	7-18-2017	Quit Claim Deed—Authorizes the execution of a contract for sale with MCB Hotel Owner		(not codified)
70606	7-18-2017	Supplemental appropriation to the Annual Budget for FY 2017—2018 in the amount of $390,000		(not codified)
70607	7-19-2017	Air Pollution—Repeals Ordinance 68657 pertaining to the regulation and control of air pollution and enacts in lieu thereof a new ordinance on the same subject matter	2—7	11.34.010—11.34.060
			8—13	11.34.080—11.34.130
			14	11.34.150
			15—17	11.34.200—11.34.220
			18	11.34.240
			20	11.34.250
			22	11.34.260
70608	7-26-2017	Animal Code—Repeals Section Two of Ordinance 62941, codified as Section 10.20.010, and enacts a new section in lieu thereof; repeals Section Five of Ordinance 62853, codified as Section 10.20.013, and enacts a new section in lieu thereof; repeals Section One of Ordinance 68463, codified as Section 10.20.015, and enacts a new section in lieu thereof, repeals Section Eight of Ordinance 62853, codified as Section 10.20.016, and enacts a new section in lieu thereof; repeals Section Four of Ordinance 47883, codified as Section 10.20.160, and enacts a new section in lieu thereof; repeals Section One of Ordinance 47883, codified as Section 10.20.130; and repeals Section 42333, codified as Section 10.70.170	1	10.20.010
			2	10.20.013
			3	10.20.015
			4	10.20.016
			5	10.20.160
70609	7-26-2017	Public Safety—Designates the first Tuesday of October to be the City of St. Louis' National Night Out		(not codified)
70610	7-26-2017	Streets—Honorarily designates a section of E. Lee Avenue as "Terry 'Chip' Jones Way"		(not codified)
70611	8- 1-2017	Traffic Code—Repeals Section 17.62.220 of section one of Ordinance 62047 and repeals parts of Section 17.62.020 of Section Two of Ordinance 49997 pertaining to the administration of parking meter fund	1	17.62.220
			2	17.62.220
			3	17.62.020
70612	10- 5-2017	Quit Claim Deed—Authorizes the execution of a contract for sale with Vertical Realty Advisors LLC		(not codified)
70613	10-16-2017	Airport—Authorizes entering into and execution of the Hunter Engineering Lease Agreement AL-004		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70614	10-16-2017	Airport—Authorizes execution of the Trans States Holding, Inc Airport Office Building Lease Agreement AL-055		(not codified)
70615	10-16-2017	Airport—Adopts the Air Service Incentive Program for FY 2018 through 2020		(not codified)
70616	10-16-2017	Airport—Transfers $1,600,000 of excess moneys from the Airport Development Fund to the Airport Contingency Fund		(not codified)
70617	10-16-2017	Airport—Establishes and authorizes a multi-year public work and improvement project for capital improvement projects		(not codified)
70618	10-16-2017	Airport—Accepts a supplemental Agreement to Airport Aid Agreement offered by the Missouri Highways and Transportation Commission in the amount of $592,000		(not codified)
70619	10-16-2017	Airport—Authorizes execution of Airport Aid Agreement (grant agreement) with Missouri Highways and Transportation Commission in the amount of $375,000		(not codified)
70620	10-16-2017	Airport—Authorizes the execution of the First Amendment to Wifi and Distributed Antenna System Operating Agreement AL-263		(not codified)
70621	10-16-2017	Streets—Honorarily designates a portion of Fillmore Street as Ron Bozikis U.S. Army (Green Beret) Street		(not codified)
70622	10-18-2017	Conflicts of Interest—Reaffirms provisions of Ordinance 62391, 66691, 67617, 68409, 68934 establishing a policy for the disclosure of potential conflicts of interest and substantial interests for certain municipal officials	1	3.142.010
			2	3.142.020
			3	3.142.030
			4	3.142.040
70623	10-16-2017	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in a portion of CB 3957 in an irregular shaped portion of Chouteau adjacent to 4001-07 Chouteau		(not codified)
70624	10-24-2017	Evictions—Prohibits landlords from engaging in certain eviction tactics instead of using the legal process for evictions	1—6	11.105.010—11.105.060
70625	10-24-2017	Amendment to Budget—Amends Ordinance 70540, Budget for FY 2017-18, and appropriates sets apart the sum of $1,910,000 to the Local Use Tax Fund		(not codified)
70626	10-24-2017	Airport—Authorizes execution of the First Amendment to Professional Service Agreement for Fleet Vehicles and Special Equipment Maintenance/Repairs Services		(not codified)
70627	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1956 Utah St. Area		(not codified)
70628	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2918 Wyoming St. Area		(not codified)
70629	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2821 Texas Ave.		(not codified)
70630	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3021 Texas Ave. Area		(not codified)
70631	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5219 Daggett Ave, Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70632	11- 1-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3830 and 3831 Boulevard Heights Ct. Area		(not codified)
70633	11- 1-2017	Traffic—Establishes a four way stop site at the intersection of Hartford and Morgan Ford		(not codified)
70634	11- 1-2017	Streets—Honorarily designates a portion of Sheridan Ave. as Elder Bennie Lee Thompson Street		(not codified)
70635	11- 1-2017	Vacation—Conditionally vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic		(not codified)
70636	11- 1-2017	Port Authority—Repeals Ordinance 66275 and enacts a new ordinance pertaining to the Port Authority Commission's authority to negotiate terms and conditions of a lease on the unimproved wharf and to advertise for proposals on the unimproved wharf	2, 3	21.08.080
70637	11- 1-2017	Streets—Honorarily designates a portion of Garfield Street as Norma Leggette Lane		(not codified)
70638	11- 8-2017	Zoning—District Map change in CB 2513 from C to G at 3866-68 Windsor Place		(not codified)
70639	11- 8-2017	Zoning—District Map change in CB 1228.18 from C and J to J at 4115 N. Broadway and 815 & 817 Angelica Street		(not codified)
70640	11- 8-2017	Zoning—District Map change to H		(not codified)
70641	11- 8-17	Parks—Renames a park in the 26th Ward known as Parkland Park to the Frank Williamson Sr. Park		(not codified)
70642	11- 8-2017	2018 Annual Action Plan to HUD for grant funds including CDBG, HOME Investment Partnership, Emergency Solutions Grant and other federal grants and authorizing and directing the Director of CDA to contract with municipal agencies and other non—profit corporations and other necessary acts for the expenditure of the grant funds		(not codified)
70643	11- 8-2017	Traffic—Amends Section One of Ordinance 67757, codified as Section 17.76.020, pertaining to Residential Disabled Parking	1	17.76.020
70644	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5335 Gilson Ave.		(not codified)
70645	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5345 Daggett Ave.		(not codified)
70646	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3442-44 California Ave.		(not codified)
70647	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for St. Ferdinand Phase II Redevelopment Area		(not codified)
70648	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4131 Flora Pl.		(not codified)
70649	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4212 Botanical Ave.		(not codified)
70650	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3931 Russell Blvd.		(not codified)
70651	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2806-12 Locust St.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70652	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6755, 6767 & 6769 Nashville Ave.		(not codified)
70653	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1416-18 Union Blvd.		(not codified)
70654	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2330-32 S. 12th St.		(not codified)
70655	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2262-65 Indiana		(not codified)
70656	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3422 Oregon Ave.		(not codified)
70657	11-14-2017	Redevelopment Plan—Amends Ordinance 65955 by expanding the boundary of the Lincoln Ave. Redevelopment Area to include 3937 Lincoln Ave. and renaming area the 3922-68, 3919-29, and 3937-67 Lincoln Ave. Redevelopment Area		(not codified)
70658	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3325 Wisconsin Ave.		(not codified)
70659	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1302 Boyle Ave.		(not codified)
70660	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1001-03 Russell Blvd.		(not codified)
70661	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2222 Mernard St.		(not codified)
70662	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4170-4174 Manchester Ave.		(not codified)
70663	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4211-4219, & 4235-39 Chouteau Ave.		(not codified)
70664	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4330 & 4337 Gibson Ave. & 4210 Chouteau Ave.		(not codified)
70665	11-14-17	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4310-20 Vista Ave.		(not codified)
70666	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1115-23 S. Newstead Ave. Area		(not codified)
70667	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3441-51 Juniata St.		(not codified)
70668	11-14-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2809 Belt Ave. Area		(not codified)
70669	11-14-2017	Grant—Authorizes execution of a Cooperative Agreement Award with the U.S. Department of Justice, Office of Juvenile Justice Delinquency Prevention		(not codified)
70670	11-22-2017	Excise—Repeals Ordinance 70573 and enacts a new ordinance prohibiting the issuance of any package or drink liquor licenses for currently non-licensed premises in the Twenty-Seventh Ward Liquor Control District		(not codified)
70671	11-22-2017	Traffic—Establishes a four way stop site at Piccadilly and Commonwealth		(not codified)
70672	11-22-2017	Traffic—Establishes a four way stop at Bancroft and Prather		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70673	11-22-2017	Airport—Appropriates $630,000 of excess moneys from Debt Service Stabilization Fund to the Airport Development Fund		(not codified)
70674	11-22-2017	Airport—Authorizes execution of a First Amendment to Section One of the Airfield, Building and & Environs Project Ordinance 70410 and increases total estimated cost by $630,000		(not codified)
70675	11-22-2017	Airport—Authorizes the execution of the Host International Local Concept Restaurant Concession Agreement AL-073		(not codified)
70676	11-27-2017	Quit Claim Deed—Authorizes execution of quit claim deed upon receipt of $5000.00		(not codified)
70677	11-27-2017	Tax Increment Revenue Notes—Authorizes issuance of TIF notes for 706 Market Redevelopment Project		(not codified)
70678	12- 5-2017	Excise—Repeals Ordinance 69000 and enacts a new Ordinance on the same subject matter prohibiting the issuance of package and drink liquor licenses for any currently non-licensed premises in the Third Ward Liquor Control District		(not codified)
70679	12- 5-2017	Streets—Temporarily closes traffic on the 4400 block of Red Bud Avenue		(not codified)
70680	12-12-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3172 Morgan Ford Rd.		(not codified)
70681	12-12-2017	Office of Community Mediation Office—Establishes an Office of Community Mediation, supervised by the City Counselor, for oversight and management of establishing protocol for delivering voluntary mediation services	1—8	3.145.010—3.145.080
70682	12-12-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4400-44 & 4401-43 Red Bud Ave.		(not codified)
70683	12-12-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4100-4798 and 4101-4799 W. Natural Bridge Ave. Redevelopment Area		(not codified)
70684	12-12-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3420 California Ave.		(not codified)
70685	12-19-2017	Zoning—District Map change in CB 2076 at 2801 & 2803 Magnolia Ave., from "J" to "F"		(not codified)
70686	12-19-2017	Zoning—District Map change in CB 2076 at 2809 & 2811-13 Magnolia Ave., from "J" to "C"		(not codified)
70687	12-19-2017	Zoning—District Map change in CB 929 at 2647-49 & 2651-53 Locust Blvd from "J" to "H"		(not codified)
70688	12-19-2017	Zoning—District Map change from "J" and "G" to "G" in CB 3957 (4001-99 Chouteau) and from "B" to "G" in CB 3965 (4113-15, 4117-19 & 4121-23 Chouteau Ave.		(not codified)
70689	12-19-2017	Streets—Temporarily closes traffic on a portion of Sullivan Ave. at Grand		(not codified)
70690	12-27-2017	Tax Increment Finance Notes—Authorizes the execution and delivery of the Fifth Supplemental Trust Indenture for the St. Louis Innovation District Tax Increment Financing Redevelopment Plan		(not codified)
70691	12-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2001-03 Ann Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70692	12-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4121 Russell Blvd		(not codified)
70693	12-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 7500-7518 South Broadway		(not codified)
70694	12-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5231-5233 & 5239-5241 Shaw Ave.		(not codified)
70695	12-27-2017	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4601 South Broadway		(not codified)
70696	12-27-2017	Redevelopment Projects—Dissolves the Special Allocation Fund for the Edison Brothers Warehouse and Center for the Emerging Technology Redevelopment Project and terminates designation as a redevelopment area		(not codified)
70697	12-27-2017	Tax Increment Financing Plans—Determination that TIF plans are making satisfactory progress under the proposed time schedule for completion of projects		(not codified)
70698	1-19-2018	Airport—Transfer of up to $13,727,769 of excess moneys to the Airport Revenue Fund		(not codified)
70699	1-19-2018	Airport—Authorization to execute the Second Amendment to Fuel System Lease and Use Agreement AL-442		(not codified)
70700	1-27-2018	Parking Commission—Repeals Section B-2 of Section Two of Ordinance 70611 and enacts in lieu thereof a new paragraph pertaining to the Parking Meter Fund	1	17.62.220
70701	2- 1-2018	Airport—Authorization to execute the First Amendment to Lease Agreement AL-222 with MHS Travel and Charter		(not codified)
70702	2- 1-2018	Intergovernmental Agreement—Approval and authorization to execute Intergovernmental Agreement with Metropolitan Sewer District		(not codified)
70703	2- 1-2018	Annual Budget for FY 2017—2018-Makes a supplemental appropriation to the Annual Budget Ordinance 70540 for FY 2017-18 in the amount of $13,713 for Parks and Recreation		(not codified)
70704	2- 1-2018	Public Works and Improvement Project—Establishes multiple public works and improvement projects: Louisiana Calm Street Project, Dr. Martin Luther King Lighting and Signal Interconnect Ph. 3, Hall Street Reconstruction, Hamilton Bridge Over Metrolink Reconstruction, 7th Street Improvements, Jefferson Traffic Signal and ITS Upgrades		(not codified)
70705	2- 1-2018	Traffic—Establishes a three-way stop site at Devonshire and Childress		(not codified)
70706	2- 1-2018	Airport—Authorizes and directs execution of a Contract for Sale of Property with Ameren in the amount of $80,000		(not codified)
70707	2- 1-2018	Airport—Authorizes execution of the First Amendment to the Restated and Amended Lease Agreement AL-223		(not codified)
70708	2- 1-2018	Grant—Authorizes execution of agreements with U.S. Department of Housing and Urban Development for Lead Hazard Reduction Demonstration Grant in the sum of $2,100,000		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70709	2- 2-2018	Amends Ordinance 69429 by repealing Section Two and Section Three of that ordinance and enacts new sections pertaining to the same subject matters relating to the prosecution of marijuana offenses	1, 2	11.60.310, 11.60.320
70710	2-12-2018	Traffic—Authorizes the Department of Streets to develop and promulgate rules and regulations consistent with Chapter 17 to facilitate the regulation of bike sharing		(not codified)
70711	2-13-2018	Streets—Establishes a four-way stop site at Clifton and Oleatha		(not codified)
70712	2-23-2018	Zoning—District Map change in CB 3666 from "C" and "F" to "C" at 2505 N. Sarah Street		(not codified)
70713	2-23-2018	Zoning—District Map change in CB 1532 from "C" to "F" at 3306 Wisconsin Ave.		(not codified)
70714	2-23-2018	Sheriff's Office—Amends Ordinance 70052 by repealing Section Two and enacting a new Section Two pertaining to the pay grades and employment classifications of the Sheriff's Office		(not codified)
70715	2-23-18	Bond Measure—Ballot measure to submit special bond measure to the voters for the issuance of bonds not to exceed $50,000,000		(not codified)
70716	2-26-2018	Public Meetings—Requires IT Services Agency to maintain a calendar of all public meetings on City website		(not codified)
70717	2-27-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 300 South Broadway		(not codified)
70718	3- 7-2018	Redevelopment Plan—Amends Ordinance 63535 approved on August 1, 1995 by modifying the terms of the tax abatement for the Eleventh/Clark/Eighth/Poplar Redevelopment Area		(not codified)
70719	3- 7-2018	Zoning—Repeals The Grove Commercial Special Use District, Ordinance 67924		(not codified)
70720	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2400-22 N. Sarah Street, and 4056-58 St. Ferdinand Ave. Area		(not codified)
70721	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5122-24 Kensington Ave. Area		(not codified)
70722	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1216-18 Kraft Ave.		(not codified)
70723	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4200-98 & 4201-99 Harris Ave. Area		(not codified)
70724	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5522 Delmar Blvd Area		(not codified)
70725	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 701-05 N. 1st Street		(not codified)
70726	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3450 Oregon Ave.		(not codified)
70727	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3024 Potomac St.		(not codified)
70728	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3548 S. Broadway		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70729	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6132 & 7600 Vermont Ave.		(not codified)
70730	3- 7-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for Forest Park Scattered Sites V		(not codified)
70731	3-12-2018	Quit Claim Deed—Authorizes execution of quit claim deed in the sum of $3,500 with Botanical Heights Homes LLC at 4223 Gibson Ave.		(not codified)
70732	3-12-2018	Zoning—Establishes the Forest Park Southeast Form-Based District		(not codified)
70733	3-12-2018	Dissolves the East Loop/Parkview Gardens Special Business District by repealing Ordinance 63634		(not codified)
70734	3-12-2018	Airport-Authorizes the execution of the Consent to Assignment by ABM Parking Services to ABM Aviation for agreement AL-267		(not codified)
70735	3-12-2018	Community Improvement District—Establishes the EQH Market Street Community Improvement District		(not codified)
70736	3-12-2018	Building—Amends Section One and Two of Ordinance 63800, codified as Section 25.64.010 and 25.64.020 pertaining to the collection of administrative fines for buildings and structures	1	25.64.010, 25.64.020
70737	3-12-2018	Building—Repeals Section 11 of Ordinance 66857, codified as 25.33.110 and enacts a new section on the same subject matter relating to Hearing Officer's decision and collection procedures	1	25.33.110
70738	3-12-2018	Streets—Honorarily designates a portion of 7th Street as Bismark Street		(not codified)
70739	3-12-2018	Sales and Use Tax—Prohibits any special reallocation of revenue generated by taxes authorized by Prop P other than for the purposes set forth in Ordinance 70580 except as approved by the Board of Aldermen		(not codified)
70740	3-12-2018	Tax Increment Revenue Notes—Authorizes issuance of tax increment revenue notes for the St. Louis Innovation District/RPA 3 Redevelopment Project in the amount not to exceed $18,400,000		(not codified)
70741	3-12-2017	Redevelopment Project/Agreement—Adopts and approves redevelopment projects for Redevelopment Project Area 3 as described in the Amended and Restated St. Louis Innovation District Tax Increment Financing Redevelopment Plan and authorizing execution of the First Amendment to Amended and Restated Redevelopment Agreement		(not codified)
70742	3-12-2018	Traffic—Establishes a two-way stop at Alfred and Bingham		(not codified)
70743	3-12-2018	50/50 Sidewalk Programs City Wide—Authorizes the 2018 St. Louis Works and the 50/50 Sidewalk Programs City Wide and appropriates $5,300,000		(not codified)
70744	3-12-2018	Parking District—Establishes the Talmage Residential Parking District	1	17.170.010
			2	17.170.020—17.170.060
70745	3-12-2018	Parking Commission—Parking Commission to operate under Chapter 17.62 if RSMo §§ 82.484 and 82.487 are held unconstitutional	1 Added	17.62.055

Ordinance Number	Date	Description	Section	Section this Code
70746	3-28-2018	Domestic Violence Prevention and Family Support Fund—Establishes fund for the collection of charitable donations to assist prevention of domestic violence	1—7 Added	5.102.010—5.102.070
70747	3-28-2018	Redevelopment Agreement—Amends Ordinance 65857 pertaining to the redevelopment agreement with the Grand Center and authorizing application for tax abatement for the 3637 Washington Fox Garage Project		(not codified)
70748	3-28-2018	Directs SLDC to complete an annual City Economic Growth Strategy Report and present findings to the Board of Aldermen		(not codified)
70749	3-28-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3434 and 3436 Indiana Ave.		(not codified)
70750	3-28-2018	Redevelopment Plan/Project/Area—Approves Amended Redevelopment Plan for Redevelopment Project Area 2 City Foundry Saint Louis Tax Increment Redevelopment Plan, amends boundaries and approves TIF financing for the project		(not codified)
70751	5- 1-2018	Parking—Prohibits the doubling of parking meter and parking violations if the payment is received within twenty days or less and if the fine is appealed then it will not double if payment is received within 30 or less calendar days	1, 2	17.62.250
70752	5- 1-2018	Amends Ordinance 68610 pertaining to the semi-annual registration fee for certain buildings and structures by removing the fee exemption for properties subject to a specific redevelopment agreement		(not codified)
70753	5- 1-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1020 Union Ave./5251 Cates Ave. Area		(not codified)
70754	Ordinance number not used.			
70755	Signed May 1, 2018	Annual Public Safety Plan—Directs the Director of Public Safety to complete an Annual Public Safety Plan to the Board of Aldermen and the Public Safety Committee of the Board of Aldermen codified		(not codified)
70756	5- 1-2018	Civilian Oversight Board—Amends Ordinance 69984 and empowers the COB to issue subpoenas	1	3.140.040
70757	5- 1-2018	Zoning—Zoning District Map change in CB 2485 from "G" to "B" at 4231-41 N. Grand		(not codified)
70758	5- 1-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1301 Union Ave.		(not codified)
70759	5- 1-2018	Redevelopment Agreement—Authorizes the execution of a redevelopment agreement with FoPA, LLC to the City Foundry Saint Louis RPA 2 Redevelopment Project		(not codified)
70760	5- 1-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3450 Wisconsin Ave		(not codified)
70761	5- 1-2018	Streets—Designates a portion of Sheridan Avenue as the Pastor Bennie Lee Thompson, Sr. Avenue		(not codified)
70762	5- 1-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 215 York Ave.		(not codified)
70763	5- 1-2018	Streets—Designates a portion of Lincoln Street as Frankie Muse Freeman Boulevard		(not codified)
70764	5- 1-2018	Streets—Establishes a four-way stop at Iowa and Juniata Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70765	5- 1-2018	Streets—Designates a portion of Webster Street as the Norma R. Seay Avenue		(not codified)
70766	5- 2-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for Locust St./Jefferson Ave. Area		(not codified)
70767	5- 4-2018	Pertaining to the MBE and WBE programs and amends Ordinance 69427 and Sections 3.110.020, 3.110.030, 3.110.040, and 3.110.090 to increase the percentage goals and implementing a mandatory one-year disqualification penalty and liquidated damages clause for developers and contractors who fail to meet goals	1—8	8.118.010—8.118.080
			9	3.110.020—3.110.040
			10	3.110.090
70768	6-29-2018	Annual Operating Budget Plan for Fiscal Year 2018-2019—Appropriates payment for Interest, Expenses, and Principle for City's Bonded Indebtedness, establishing City tax rates, and making appropriation for current year expenses		(not codified)
70769	5-29-2018	Renews the Tower Grove South Concerned Citizens Special Business District pursuant to Sections 71.790 through 71.8098		(not codified)
70770	6- 4-2018	Vacation—Vacates above surface, surface, and sub-surface rights for vehicular, equestrian and pedestrian traffic in C.B. 798 as bounded by Shenandoah, 10th St. Lami and Menard		(not codified)
70771	6- 4-2018	Airport—Authorizes a public works and improvement project the terminal complexes, concourses and gates, taxiways and ramps, and associated Airport structures and facilities		(not codified)
70772	6- 4-2018	Airport—Authorizes a First Supplement Appropriation of $481,302 from the Airport Development Fund		(not codified)
70773	6- 4-2018	Streets—Temporarily closes, barricades or impedes the flow of traffic on Anderson Ave. at the north curb line of Dryden Ave.		(not codified)
70774	6- 4-2018	Streets—Establishes a four-way stop at the intersection of Mardel Ave. and Sulphur Ave.		(not codified)
70775	6- 4-2018	Airport—Appropriation of up to $4,000,000 of excess moneys from the DSSF to the Airport Development Fund		(not codified)
70776	6- 4-2018	Airport—Authorizing a First Amendment to Section One of the Airfield, Building & Environs Projects Ordinance 70617 and increasing the total estimated cost by $4,000,000 to $19,000,000 by adding a new project entitled Coldwater Creek Emergency Repairs		(not codified)
70777	6- 4-2018	Airport—Authorizes and directs the Director of Airports and Comptroller to enter into and execute the Second Lease Agreement AL-222		(not codified)
70778	6-18-2018	Zoning—District Map change in CB 3084 from "J" and "K" to "K" only at 7500-18 S. Broad		(not codified)
70779	6-18-2018	Zoning—District Map change in CB 4741 from "A" and "F" to "A" only at 5201 Fyler Ave.		(not codified)
70780	6-18-2018	Excise—Repeals Ordinance 70887 and enacts in lieu thereof a new ordinance prohibiting the issuance of any package or drink liquor licenses within the Fourth Ward Liquor Control District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70781	6-18-2018	Pertaining to campaign contribution limits, amending Ordinance 70357 Section 1 and 3, and repealing Section 4 of said ordinance to acknowledge State of Missouri maximum limits on campaign contributions and to decrease the maximum limits	1, 2	3.72.010, 3.72.030
70782	6-18-2018	Authorizes the Director of Public Safety to enter into a mutual aid agreement between the City and St. Clair County, IL for the purpose of providing law enforcement services on Metrolink property within the City of St. Louis		(not codified)
70783	6-18-2018	Tax and Revenue Anticipation Notes—Authorizes the borrowing of funds in anticipation of collection of tax payments and issuance of notes		(not codified)
70784	6-18-2018	Airport—Authorizes and directs the Director of Airports and the Comptroller to enter into and execute the Airport Terminal Services Inc. Space Permit AL-071		(not codified)
70785	6-18-2018	Streets—Changes 3200 block of Sullivan to a two-way passage street		(not codified)
70786	6-18-2018	Vacation—Conditionally vacates a portion of Forest Park Ave abutting CB 3919-E and adjacent to 3763 Forest Park		(not codified)
70787	6-18-2018	Streets—Makes changes to traffic patterns on Greer, Dodier and University		(not codifed)
70788	6-27-2018	Zoning—Map change to Central West End Form Based Code for parcel in CB 3914 (4117R West Pine Blvd.)		(not codified)
70789	6-27-2018	Zoning—District Map change in CB 2861 from "B" to "F" at 5601-03 S. Broadway		(not codified)
70790	6-27-2018	Streets—Establishes a three-way stop site at the intersection of Pernod Ave. and Tedmar Ave.		(not codified)
70791	6-29-2018	Civil Service—Repeals Ordinance 70285 and adopt a new ordinance that establishes a compensation plan, terms and conditions of employment and benefits	1, 2	4.10.010, 4.10.020
			3	4.10.210
			4—20	4.10.040—4.10.200
			21—27	4.10.220—4.10.280
70792	6-29-2018	Parking Commission—Appropriates payment for operating expenses, capital equipment and improvement expenses including lease purchase agreements involving Parking Division assets and debt service in the amount of $17,272,901.81		(not codified)
70793	6-29-2018	Authorizes a supplemental appropriation, amends Ordinance 70540 by appropriating and setting apart projected local use tax and gaming fund revenues to address certain shortfalls in revenues in the amount of $3,200,000		(not codified)
70794	7-18-2018	Building—Adopts the 2018 International Building Code with amendments; repeals Ordinance 68610, 68788, and 69271	2—4	25.01.010—25.01.030
70795	7- 6-2018	Building—Adopts the 2018 International Residential Code with amendments; repeals Ordinance 68789	2—4	25.11.010—25.11.030
70796	7- 6-2018	Building—Adopts the 2018 International Fire Code with amendments; repeals Ordinance 69600 (codified)	2—4	25.06.020—25.06.040

Ordinance Number	Date	Description	Section	Section this Code
70797	7- 6-2018	Building—Adopts the 2018 International Existing Building Code with amendments; repeals Ordinance 68790	2—4	25.20.010—25.20.030
70798	7- 6-2018	Building—Adopts the 2018 International Property Maintenance Code with amendments; repeals Ordinance 68791	2—4	25.32.010—25.32.030
70799	7- 6-2018	Building—Adopts the 2018 International Energy Conservation Code with amendments; repeals Ordinance 68792	2—4	25.13.010—25.13.030
70800	7- 6-2018	Building—Adopts the 2018 Mechanical Code with amendments; repeals Ordinance 68639 and 68847	2—4	25.03.010—25.03.030
70801	7- 6-2018	Building—Adopts the 2018 International Fuel Code with amendments; repeals Ordinance 68638	2—4	25.07.010—25.07.030
70802	7- 6-2018	Building—Adopts the 2018 National Electrical Code with amendments; repeals Ordinance 68831	2—4	25.02.010—25.02.030
70803	7- 9-2018	Transit Sales Tax—Directs the Treasurer to deposit $11,560,000 into the "City Public Transit Sales Tax Trust Fund" Account ONE for Bi-State Development Agency		(not codified)
70804	7- 9-2018	Transit Sales Tax—Directs the Treasurer to deposit $11,560,000 into the "City Public Transit Sales Tax Trust Fund" Account TWO for Bi-State Development Agency		(not codified)
70805	7- 9-2018	Appropriates $21,877,000 out of the Transportation Trust Fund to Bi-State Development Agency for transportation purposes		(not codified)
70806	7- 9-2018	Streets—Establishing honorary Street name Urban League Square at the intersection of North Spring Avenue and Grandel Square		(not codified)
70807	7- 9-2018	Excise—Repeals Ordinance 70026 and prohibits the issuance of 3 a.m. closing permits for any currently non-licensed 3 a.m. premises in the Twenty-Eighth Ward		(not codified)
70808	7-10-2018	Lease Agreement—Authorizes First Amendment of the Lease Agreement authorized by Ordinance 63956 with the Municipal Theatre Association		(not codified)
70809	7-10-2018	Airport—Authorizes a public works and improvement program at Lambert International Airport		(not codified)
70810	7-10-2018	Airport—Authorizes the transfer of up to $3,000,000 from the DSFF to the Airport Development Fund		(not codified)
70811	7-10-2018	Streets—Approving the name of a new public street located in the approved Jonas Hubbard Estates subdivision in CB 552		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70812	7-16-2018	Zoning—Requires that certain uses that are regulated by a plat and petition process under the License and Building Code be made a conditional use, or a prohibited use or a use by right; repeals Section One of Ordinance 60483, codified as Section 26.36.020, repeals a part of Section Five of Ordinance 62588, codified as Section 26.40.025, and enacts a new section on the same subject matter; repeals Section Six and Seven of Ordinance 64167, codified as Section 26.52.020 and 26.52.025, and enacting two new sections on the same subject matter; repeals Section Eight of Ordinance 64167, codified as 26.56.025, and enacts a new section on the same subject matter; repeals a part Section Sixteen of Ordinance 59979, codified as 26.60.020, and enacts a new section on the same subject matter; repeals Section Nine of Ordinance 64167, codified as 26.60.025, and enacts a new section on the same subject matter; and adds a new Section to be codified as 26.64.025	1	26.36.020
			2	26.40.025
			3	26.52.020 26.52.025
			4	26.56.025
			5	26.60.020
			6	26.60.025
			7	26.64.025
70813	7-16-2018	Licenses—Repeals Ordinances 56788, 57294, 58645, 56859, 57071, 68570, 62566, 55051, 61762, 64299, 31271, 41524, 49621, 54691, 57494, 58470, 61095, 55784, 57502, 63461, 64878, 69096, 56858, 57404, 68571, and 26445 codified as Chapter 8.16, 8.24, 8.25, 8.26, 8.32, 8.72, 8.78, 8.97, and 8.02.160 and in enacts in lieu thereof new Chapters for each	1	8.16.010 8.16.020 8.16.040 8.16.070— 8.16.090 8.16.110— 8.16.130 8.16.150— 8.16.180
			2	8.24.010— 8.24.090 8.24.110— 8.24.160 8.24.180 8.24.190
			3	8.25.010— 8.25.120
			4	8.26.010 8.26.030 8.26.040 8.26.070— 8.26.130 8.26.150
			5	8.32.010 8.32.020 8.32.045 8.32.050— 8.32.220
			6	8.72.010 8.72.020 8.72.050— 8.72.160
			7	8.78.010— 8.78.370
			8	8.97.010 8.97.030 8.97.060— 8.97.160 8.97.180
70814	7-27-2018	Terminates and dissolves the Orpheum Theater Community District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70815	7-27-2018	Streets—Authorizes the honorary street name Robert Prager Way at the beginning of the intersection of Morgan Ford Road and Bates Street		(not codified)
70816	7-27-2018	Amends Ordinance Nos. 69146 and 69153 due to the assignment of the redevelopment project to HG Pearl Georgian LLC		(not codified)
70817	9-17-2018	Authorizes the Parks Director to execute an intergovernmental cooperation agreement with the Art Museum Subdistrict of the Metropolitan Zoological Park and the Museum District of the City		(not codified)
70818	9-21-2018	Authorizes the use of condemnation to acquire a site consisting of 97 acres in North St. Louis for the National Geospatial-Intelligence Agency's facility		(not codified)
70819		Grant—Authorizes the Mayor to enter into and execute grant with the Missouri Foundation for 3 Health		(not codified)
70820	10-11-2018	Deeds—Pertains to the conveyances of title and the recording of such transfer with the Recorder of Deeds; amends Section Three of Ordinance 56141 and Ordinance 65038	1	3.20.080
70821	10-11-2018	Preservation Board—Amends Ordinance 57688 the Skinker-DeBaliviere-Catlin Tract—Parkview Historic District; by repealing and replacing certain standards for the District		(not codified)
70822	10-11-2018	Authorizes and directs the Director of Human Services to accept a Grant Award from St. Louis City Senior Services Fund in the amount of $50,000		(not codified)
70823	10-11-2018	Authorizes the issuance and delivery of general obligation bonds not to exceed $50,000,000		(not codified)
70824	10-19-2018	Airport—Authorizes a Third Amendment to Section One of the Airport Schedule F CIP Project Ordinance 67357 as amended by Ordinance 68650 and 68852		(not codified)
70825	10-19-2018	Airport—Authorizes and directs the Mayor and Comptroller to accept and execute Airport Aid Agreement offered by Missouri Highways and Transportation Commission for the marketing and promotion of air service at the Airport in the amount of $350,000		(not codified)
70826	10-19-2018	Streets—Authorizes a three-way stop site at the intersection of Missouri Ave and Ann Ave.		(not codified)
70827	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3452 Oregon Ave.		(not codified)
70828	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3429-3431 Ohio Ave.		(not codified)
70829	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3520 Wisconsin Ave.		(not codified)
70830	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 532 Bates Ave. Area		(not codified)
70831	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5019, 5032, & 5034 Ulena Ave. Area		(not codified)
70832	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5780 McPherson Ave. Area		(not codified)
70833	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 7401 Vermont Ave. Area		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70834	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 6452 Nashville Ave. & 6453 Wade Ave. Area		(not codified)
70835	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3437-3439 Iowa Ave.		(not codified)
70836	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3211 Osage St.		(not codified)
70837	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 7714-18 South Broadway Area		(not codified)
70838	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2829 Iowa Ave.		(not codified)
70839	10-19-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2235 McNair Ave.		(not codified)
70840	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 705-719 North 2nd St.		(not codified)
70841	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1420-22 Union Blvd Area		(not codified)
70842	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4213 Maryland Ave.		(not codified)
70843	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3201 Morgan Ford Rd. Area		(not codified)
70844	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 408-410 N. Sarah St. Area		(not codified)
70845	10-29-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3520-3522 Arkansas Ave.		(not codified)
70846	Missing			
70847	11- 7-2018	St. Louis Whistleblower Law—Repeals Ordinance 70475 and enacts a new ordinance to report improper governmental action and provides protection from retaliatory action for reporting and cooperating in the investigation and/or prosecution of improper governmental action and retaliation and penalties	2—8	15.14.010—15.14.070
70848	11- 7-18	Zoning—District Map change from "A" and "F" to "F" in CB 5177 at 5347-53 Nottingham Ave.		(not codified)
70849	11- 7-2018	Grant—Authorizes the Director of Human Services to accept funding from the Missouri Association of Area Agencies on Aging in the amount of $120,000 over the next five fiscal years		(not codified)
70850	11- 7-2018	Intergovernmental Agreement—Authorizes the Director of Public Safety to enter into and execute an intergovernmental agreement with the United States Marshal Service		(not codified)
70851	11- 7-2018	Repeals Section 4, Subsections 746.010 through 756.040 of Ordinance 51871 relating to the establishment of the Decent Literature Commission codified as Sections 15.32.010 through 15.32.040	1 Rpld	15.32.010—15.32.040
70852	11- 7-2018	Cooperative Agreement—Authorizes and directs the Director of the Department of Health to enter into and execute a Cooperative Agreement Award with the US Department of Justice		(not codified)
70853	Not signed	Vacation—Repeals Section One, Six, and Ten of Ordinance 70524 in order to make technical corrections concerning the vacation		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70854	11-16-2018	Streets—Closes, barricades and impedes traffic on the east/west alley in CB 5000 bounded by Robin, Lillian, Riverview Blvd, and Theodore		(not codified)
70855	11-16-2018	Airport—Authorizes and directs the Director of Airports to enter into and execute the Memorandum of Agreement for Expansion of and Improvement to Inbound Baggage System and Facilities Terminal 2		(not codified)
70856	11-16-2018	Airport—Directs the Director of Airports and Comptroller to enter into an execute Concession Agreement AL-252 with AvendCo., LLC		(not codified)
70857	11-16-2018	Real Property—Authorizes the sale of real property located in CB 2007 and 2008 in the amount of $650,000.00 to TPI XV, LLC		(not codified)
70858	11-16-2018	Establishes a two-way stop site at the intersection of Warne Ave and Lexington Ave.		(not codified)
70859	11-16-2018	Community Improvement District—Establishes the La Collina Community Improvement District		(not codified)
70860	11-19-2018	Streets—Authorizes the honorary street name Frank Williamson Sr. Way at the intersection of Enright Ave. and Union Blvd		(not codified)
70861	11-19-2018	Streets—Authorizes the honorary street name Thelma M. Williamson Way at the intersection of Arlington and Clemens Ave.		(not codified)
70862	12- 3-2018	Business Licenses—Amends Section One of Ordinance 62571, pertaining to exemptions from the graduated business license tax, codified as Section 8.07.020 by adding a new subsection five that exempts local farmers for selling agricultural products	1 Added	8.07.041(5)
70863	12- 3-2018	Traffic—Prohibits commercial semi-trail truck traffic along Utah Street from the west boundary of Grant Blvd to the east boundary of Morgan Ford Road		(not codified)
70864	12- 3-2018	Campaigns—Amends Section 2 of Ordinance 58267 pertaining to candidate filing fees	1	2.08.060
70865	12- 3-2018	Elections—Amends Section 2.08.120 of the Revised Code pertaining to preparing sample ballots and the order in which candidate appear	1	2.08.120
70866	12- 3-2018	Campaigns—Amends Section 1(B)(1) of Ordinance 59982 codified as 2.08.400(B)(1) pertaining to the last date on which a candidate may withdraw from a primary election from 40 days to 50 days prior to the date of the primary election	1	2.08.400
70867	12- 3-2018	Vacation—Conditionally vacates travel along an alley in CB 1174 bounded by 19th Street, Mallinckrodt, 20th Street and Salisbury		(not codified)
70868	12-11-2018	Grants—Authorize and directs Mayor to accept CDGB HOME, HOPWA grants		(not codified)
70869	12-11-2018	Zoning—District Map change from "D" and "H" to "H" in CB 5520 at 401-33 Debaliviere Ave.		(not codified)
70870	12-11-2018	Vacation—vacates travel along the north/south alley in CB 2273 as bounded by Union Pacific Railroad, 21st, Gratiot, and 22nd		(not codified)
70871	12-11-2018	Streets—Authorizes honorary street name Rev. Dr. W.H. Goatley Jr. at the intersection of North Leffingwell and Franklin Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70872	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2647-2651 Washington Blvd.		(not codified)
70873	12-16-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for the Tiffany Neighborhood Scattered Sites Area		(not codified)
70874	12-26-2018	Redevelopment Plan—Amends Ordnance Nos. 69979, 69980, and 69981 and authorizes the First Amendment to the Redevelopment Agreement with ROL Capital III, Inc.		(not codified)
70875	12-26-2018	Transparency in Government Law—Amends Ordinance 70321, codified as Section 3.115.040, regarding effective closed captioning of all public meetings at the Board of Aldermen	1	3.115.040
			2	3.115.040 3.115.030
70876	12-26-2018	Easement—Authorizes and directs the Mayor and Comptroller to execute easement agreements with The Gathering United Methodist Church, Waltrust Properties and Casa Properties		(not codified)
70877	12-26-2018	Establishes a Youth Task Force to study the obstacles to education and employment for disconnected youth in the City for the purpose of preparing a report and submitting to the Board of Aldermen within one year of the creation of the task force		(not codified)
70878	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2811-15 Locust St.		(not codified)
70879	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5550 Fyler Ave Area		(not codified)
70880	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3521, 3526, 3527, 3534 Oregon Ave.		(not codified)
70881	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1815 Locust St.		(not codified)
70882	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3107 Meramec St.		(not codified)
70883	12-26-2018	Leasehold Revenue Bonds—Authorizes the St. Louis Municipal Finance Corporation to issue and sell its Leasehold Revenue Bonds to fund construction, repair, improvement, expansion, renovation, furnishing and equipping of Cervantes Convention Center in an amount not to exceed $105,000,000		(not codified)
70884	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4328 Swan Ave. Area		(not codified)
70885	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for Chouteau/Jefferson/La Salle/ Missouri Ave./Hickory/Mackay Place Redevelopment Area		(not codified)
70886	12-26-2018	Quit Claim Deed—Authorizes and directing the Mayor and Comptroller to execute a Quit Claim Deed to Mary Jane Waggoner property located in CB 5054 at 3120 Alfred Ave. in the sum of $55,000.00		(not codified)
70887	12-26-2018	Streets—Authorizes the honorary street name Bob Gibson Way at the intersection of Gibson Ave. and South Kingshighway Blvd		(not codified)
70888	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4102 Shaw Blvd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70889	12-26-2018	Animal Code—Makes amendments to Ordinance 66384 by adding sections and repealing a subsection 10.04.170 and 10.04.165	1	10.04.145
			2	10.04.170
			3	10.04.270
			4	10.04.285
			5 Added	10.04.115
			6	10.04.165
			7 Added	10.04.360
70890	12-26-2018	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3555-3559 California Ave.		(not codified)
70891	12-26-2018	Authorizes the Director of the Department of Health to enter into and execute an Opioid Crisis Response Services Contract with the Missouri Department of Health and Senior Services		(not codified)
70892	12-26-2018	Public Utilities—Adds a new chapter, Chapter 23.59, under Title 23 regarding Small Wireless Facilities	1—7 Added	23.59.010—23.59.070
70893	1-18-2019	Ordinance repealing paragraph C of Section Two of Ordinance 63777, as amended by Ordinances 64546 and 68200 in lieu of a new paragraph enacted regarding the Cathedral Square Special Business District		(not codified)
70894	1-18-2019	Ordinance repealing paragraph (f) of Section Two of Ordinance 62622, as amended by Ordinances 63840, 64935, 68202 in lieu of a new paragraph enacted regarding the Central West End North Special Business District		(not codified)
70895	1-18-2019	Ordinance establishing a two-way stop site at Adkins Avenue and Poepping Street regulating all traffic traveling northbound and southbound on Adkins Avenue		(not codified)
70896	1-18-2019	Ordinance establishing a temporary, three-way stop site installed at Blackstone and Wells Avenue regulating traffic traveling eastbound and westbound on Wells Avenue at Blackstone Avenue, and traveling southbound on Blackstone Avenue at Wells Avenue		(not codified)
70897	1-25-2019	Pursuant to Ordinance 68937, an ordinance authorizing honorary street name Von Verson Avenue beginning at intersection of Hamilton and Enright Avenue and run east on Enright Avenue to Goodfellow and Enright Avenue		(not codified)
70898	1-25-2019	Pursuant to Ordinance 68937, an ordinance authorizing the honorary street name Cedric The Entertainer Way, beginning at North Vandeventer Avenue and Olive Street and run north on North Vandeventer Avenue to North Vandeventer and Washington Blvd.		(not codified)
70899	1-25-2019	Pursuant to Ordinance 68937, an ordinance authorizing the honorary street name Estella M. Daly Way, beginning at Morganford Road and Upton Court and run east on 4100 Block of Upton Court.		(not codified)
70900	1-25-2019	Ordinance recommended by BPS to conditionally vacate above surface, surface and sub-surface rights for vehicle, equestrian and pedestrian travel in north/south alley bounded by Robert on the north, Vermont on the east, Koeln on the south and Alabama on the west		(not codified)
70901	1-25-2019	Ordinance establishing a stop site at Ridgewood and Wilcox Avenue regulating traffic traveling westbound on Wilcox Avenue at Ridgewood		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70902	1-25-2019	Ordinance authorizing and directing the Mayor and the Comptroller to execute a permanent, irrevocable Easement to build and maintain sidewalk improvements along east side of Sulphur Ave.		(not codified)
70903	2- 1-2019	Ordinance repealing paragraph (f) of Section Two of Ordinances 63780, 64550 and 68236 and in lieu a new paragraph enacted regarding the Central West End Southeast Special Business District		(not codified)
70904	2- 1-2019	Ordinance submitting to qualified voters residing in Central West End Southeast Special Business District, as established in Ord. No. 63780; amended in Ord. Nos. 64550 and 68236 a proposal to extend tax levy on property in said district		(not codified)
70905	2- 1-2019	Gross Receipts Tax—Imposing tax on telecommunications providers and fiber network providers that are not otherwise currently subject to such taxes	1 Added	23.34.010—23.34.030
70906	2-11-2019	Ordinance pertaining to Al's Restaurant, located at 1200 N. 1st Street designating the Property as a City of St. Louis Landmark		(not codified)
70907	2-11-2019	Ordinance pertaining to Special Use Districts; establishing The Lafayette Square Area Special Use District as the "District"		(not codified)
70908	2-11-2019	Ordinance recommended and approved by the Airport Commission, BPS and Board of E & A, establishing and authorizing a public works and improvement program at Lambert Airport consisting of terminal complexes, airfield structures and facilities		(not codified)
70909	2-11-2019	Ordinance recommended by the Airport Commission and the Board of E & A authorizing and directing the Director of Airport and the Comptroller to enter and execute a Second Restated and Amended Lease Agreement Northern Tract Site		(not codified)
70910	2-14-2019	Collection of Citation Fines—Pertaining to the collection of administrative citation fines assessed by the Building Commissioner	1	25.64.010 25.64.020
70911	2-14-2019	Ordinance authorizing and directing the Circuit Attorney to enter into a contract with the U.S. Department of Justice, Bureau of Justice Assistance, Office of Justice Programs for funding to create a Conviction Integrity Unit within the Office of the Circuit Attorney		(not codified)
70912	2-14-2019	Ordinance establishing a four-way stop site at McCausland and Bancroft Ave.		(not codified)
70913	2-14-2019	Small Wireless Facilities—Amending provisions pertaining to the establishment of procedures and requirements for the collocation and deployment of Small Wireless Facilities in the right-of-way and City property	1	23.59.030
70914	2-14-2019	Skinker-Fauquier Parking District—Establishing the location and restrictions for curb parking in the restricted parking zone within the "Skinker-Fauquier Parking District"	1—5 Added	17.180.010—17.180.050
70915	2-14-2019	Ordinance repealing Ord. 70858 pertaining to a two-way stop site at Warne and Lexington Ave., and establishing a three-way stop at Warne and Lexington Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70916	2-14-2019	Ordinance authorizing and directing the Circuit Attorney to enter a Memorandum of Understanding with the U.S. Attorney's Office, Eastern District of Missouri providing for cross-jurisdiction over crimes in and around St. Louis Missouri		(not codified)
70917	2-14-2019	Small Wireless Facilities and Micro Wireless Facilities	1—3 Added	25.76.010—25.76.030
70918	2-19-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2615 Billups Ave. Area.		(not codified)
70919	2-19-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2200-2218 Washington Ave.		(not codified)
70920	2-19-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4338, 4341 and 4345 Evans		(not codified)
70921	2-19-2019	Ordinance recommended by Board of E & A authorizing the City of St. Louis to issue its Taxable Industrial Development Revenue Bonds (Anheuser ? Busch, LLC Project), Series 201.		(not codified)
70922	2-19-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for Cottage Ave./N. Taylor Ave./Maffitt Ave./Cora Ave.		(not codified)
70923	2-19-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for Meramec St./S. Compton Ave./Bates St./S. Grand Blvd.		(not codified)
70924	2-19-2019	Ordinance establishing a "Dig Once" policy governing construction and excavation that disrupts access to right-of-way including the flow of vehicle and pedestrian traffic	1—3 Added	25.74.010—25.74.030
70925	2-19-2019	Ordinance amending Ord. Nos. 64518, 67309, and 68206, authorizing the execution of an Escrow Trust Agreement by and between the City and UMB Bank, N.A.		(not codified)
70926	2-21-2019	Ordinance approved and recommended by Preservation Board and Planning Commission pertaining to the Lafayette Square Historic District, amending Ordinance #69112.		(not codified)
70927	2-21-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 200 North 4th Street.		(not codified)
70928	2-21-2019	Ordinance approving the petition to Amend the Petition to establish the La Collina Community Improvement District.		(not codified)
70929	2-21-2019	Pursuant to Ord. 68937, an ordinance authorizing the honorary street name Ms. Norma Jean Bell Way beginning at Lexington and North Newstead Ave.		(not codifed)
70930	4-19-2019	Ordinance authorizing and directing the Mayor and Comptroller to enter a Lease Agreement with Front Page Lofts, LLC.		(not codified)
70931	5- 2-2019	Ordinance to revise Ord. 70737 pertaining to enforcement of code violations related to buildings, structures and premises in St. Louis City	1	25.33.110.C
70932	5- 2-2019	Ordinance defining "recreational fire" as an outdoor fire where fuel is not contained in an incinerator	1—3 Added	11.110.010—11.110.030
70933	5- 2-2019	Ordinance repealing Section One of Ord. 63915 enacting a new Section One authorizing and directing the Director of Street to close traffic on Enright Ave. near east curb line of Newstead		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70934	5- 2-2019	Ordinance authorizing and directing the Director of Streets to close traffic on Washington Ave. near west curb line of Newstead.		(not codified)
70935	5- 1-2019	Ordinance determining Tax Increment Financing Plans listed in Exhibit A are making satisfactory progress		(not codified)
70936	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3861 St. Louis Ave.		(not codified)
70937	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4965-4975 Dr. Martin Luther King Drive.		(not codified)
70938	5- 2-2019	Ordinance to designate portions of Tower Grove East Neighborhood as a Local Historic District.		(not codified)
70939	5- 2-2019	Ordinance recommended and approved by the Airport Commission, Comptroller and Board of E & A making findings with respect to transfer of up to $13,727,769 of excess moneys that owner of Lambert Airport intends to transfer from DSSF to Airport Revenue Fund.		(not codified)
70940	5- 2-2019	Ordinance creating a Planned Unit Development District known as "Olive West Planned Unit Development District"		(not codified)
70941	5- 2-2019	Ordinance recommended by Planning Commission pertaining to "The Lighthouse Area Special Use District"		(not codified)
70942	5- 2-2019	Wireless Facilities—Adding definitions for the terms "micro wireless facility," "small wireless facility," "wireless facility," and "utility stations" and "utility towers;" amending Chapter 26.20, pertaining to the "A" Single-Family Dwelling District; amending Section 26.24.020, pertaining to the Use Regulations of the "B" Two-Family Dwelling District; amending Section 26.40.025, concerning Use Regulations for the "F" Neighborhood Commercial District; amending Section 26.52.020 and 26.52.025, pertaining to Use Regulations and Conditional Uses of the I Central Business District; amending Section 26.60.020, pertaining to Use Regulations of the K Unrestricted District	1 Added	26.08.322 26.08.389 26.08.436 26.08.437 26.08.438
			2	26.20.010— 26.20.090
			3	26.24.020
			4	26.40.025
			5	26.50.020 26.50.025
			6	26.60.020
70943	5- 2-2019	Ordinance recommended by the Planning Commission pertaining to the Forest Park Southeast Form Based District (The "District") amending definition for utility/communication uses		(not codified)
70944	5- 2-2019	Ordinance recommended by the Planning Commission pertaining to the Central West End Form Based District (The "District") amending definition for utility/communication uses		(not codified)
70945	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3000 Locust Street		(not codified)
70946	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 1929 Edwards Street & 5210 Daggett Ave.		(not codified)
70947	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5126 & 5135 Daggett Ave.		(not codified)
70948	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2647 ? 2653 Locust Street		(not codified)
70949	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 3535 Michigan Ave.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
70950	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 4325-4333 Swan Ave.		(not codified)
70951	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 2821-2823 Iowa Ave.		(not codified)
70952	5- 2-2019	Female Inmates—Ordinance pertaining to the duties of the Commissioner of Corrections and St. Louis City Sheriff adding new sections requiring that physical health needs of pregnant inmates	1, 2 Added	16.16.350, 16.16.360
70953	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5726 Reber Place		(not codified)
70954	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5467-5559 Delmar Blvd.		(not codified)
70955	5- 2-2019	Redevelopment Plan—Approves a blighting study and redevelopment plan for 5539-5551 Pershing Ave.		(not codified)
70956	5- 2-2019	Ordinance recommended by Board of E & A authorizing and directing the City to issue and sell its general obligation bonds		(not codified)
70957	5- 2-2019	Ordinance repealing Section One of Ordinance 48889 pertaining to payment and discount of a tax imposed on cigarette merchants		(not codified)
70958	5- 2-2019	Ordinance authorizing and directing the Director of Human Services to accept funding in an amount not to exceed $15,000 from OASIS Institute		(not codified)
70959	5- 2-2019	Ordinance authorizing and directing the Director of Human Services to execute agreement with Missouri Association of Area Agencies on Aging		(not codified)
70960	5- 2-2019	Ordinance amending Section One of Ordinance 67588 to exclude blocks of N. Kingshighway Blvd. between Delmar Blvd. and Wells Ave. from 18th Ward Liquor Control District		(not codified)
70961	5- 2-2019	Ordinance recommended by the BPS to vacate above surface, surface and sub-surface rights for section of Spring Ave., south of Forest Park Ave.		(not codified)
70962	1-18-2019	Office of the Circuit Attorney—Ordinance enacted pursuant to Section 56.540 to repeal Ordinance. No. 70056 relating to the Office of Circuit Attorney	2	4.48.010 4.48.020
			3—6	4.48.030—4.48.060
70982	6-25-2019	Medical Marijuana Uses—Adding a new chapter 26.70, pertaining to Medical Marijuana Uses	2 Added	26.70.010—26.70.040
70991	4-26-2019	Election Rules and Procedures—Amending 2.08.430, which pertains to election rules and procedures relating to the payment of taxes by candidates for an elective office of the City of St. Louis	2	2.08.430
71004	7-25-2019	Amending Sections 26.52.020 and 26.52.025, pertaining to Use Regulations and Conditional Uses of the "I" Central Business District; amending Section 26.60.020, pertaining to Use Regulations of the "K" Unrestricted District	1	26.52.020 26.52.025
			2	26.60.020

Ordinance Number	Date	Description	Section	Section this Code
71012	8-26-2019	Criminal Justice Coordinating Council—Provisions relating to the establishment of the Criminal Justice Coordinating Council through an intergovernmental cooperative agreement by and between the City, the Sheriff, the Twenty-Second Judicial Circuit Court, the Circuit Attorney, the Missouri State Public Defender and the Director of the Missouri Department of Corrections	1—10 Added	3.69.010—3.69.100
71060	12-13-2019	Amending Ordinance 67799 (Attachment A), Section Two, to be codified as subsection 10.04.285.E., regulating the conditions of animals kept outdoors; amending Ordinance 66595 (Attachment B), Section Six, to be codified at subsection 10.04.220.E.16.j., regarding the establishment and use of dog parks, allowing for waivers of certain requirements; repealing Section 10.04.010 of Ordinance 67799 (Attachment A) and enacting in lieu thereof a new Section 10.04.010 to be codified, pertaining to definitions; enacting a new Code Section 10.12.070, prohibiting declawing of cats; and amending Ordinance 70889 (Attachment C) Section Three II.B.1 adjusting the requirements for a dangerous dog posted notice	1	10.04.010
			2	10.04.285.E
			3	10.04.220.E.16
			4 Added	10.12.270
			5	10.04.270.B.2.a
71063	12-23-2019	Code Amendment—Amending the 2018 International Energy Conservation Code	1	25.13.020
71064	12-23-2019	Medical—Prohibiting licensed medical and mental healthcare providers from providing conversion therapy, also known as reparative therapy, ex-gay therapy, or sexual orientation and gender identity change efforts to a minor and providing penalties for the violation of said prohibition; authorizing the Director of the Health Department to receive, investigate, and refer to the City Counselor for complaints of alleged violations of the provisions of this chapter	1—5 Added	11.115.010—11.115.050
71065	12-23-2019	Agreement—Authorizing the execution of a redevelopment agreement between the City and 900 N. Tucker Building, LLC; prescribing the form and detail of said agreement; and authorizing other related actions in connection with such agreement		(not codified)
71066	12-23-2019	Budget—Authorizing and directing the issuance and delivery of not to exceed $11,850,000 plus issuance costs principal amount of tax increment revenue notes (900 N. Tucker Blvd. Redevelopment Project) …; and prescribing the form and details of such notes and the covenants and agreements made by the City to facilitate and protect the payment thereof; …		(not codified)
71067	12-23-2019	Zoning—Designating a portion of the City as a redevelopment area known as the 900 N. Tucker Blvd. Redevelopment Area pursuant to the Real Property Tax Increment Allocation Redevelopment Act; adopting a redevelopment plan, along with a redevelopment project; adopting tax increment financing within the redevelopment area; making findings with respect thereto; establishing the 900 N. Tucker Blvd. Special Allocation Fund; and authorizing certain actions by City officials		(not codified)
71068	12-23-2019	Agreement—Amending Ordinance 70599; authorizing the execution of a redevelopment agreement between the City and Vertical Realty Advisors, LLC; and authorizing other related actions in connection with such agreement		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71069	12-23-2019	Zoning—Designating a portion of the City as a redevelopment area known as the Forest Park Transit Oriented Development Redevelopment Area pursuant to the Real Property Tax Increment Allocation Redevelopment Act; adopting a redevelopment plan, along with a redevelopment project; adopting tax increment financing within the redevelopment area; making findings with respect thereto; establishing the 900 N. Tucker Blvd. Special Allocation Fund; and authorizing certain actions by City officials		(not codified)
71070	12-23-2019	Agreement—Authorizing the execution of a redevelopment agreement between the City and Pearl Capital Management, LLC; prescribing the form & details of said agreement; authorizing other related actions viz. such agreement		(not codified)
71071	12-23-2019	Budget—Authorizing and directing the issuance and delivery of not to exceed $14,100,000 plus issuance costs principal amount of tax increment revenue notes (Forest Park Transit Oriented Development) …; and prescribing the form and details of such notes and the covenants and agreements made by the City to facilitate and protect the payment thereof; …		(not codified)
71072	12-23-2019	Relating to the unlawful possession of a handgun by a minor	1 Added	15.130.080
71073		No information		
71074	1-21-2020	Personnel—Prohibiting City employers from basing hiring or promotion decisions on applicants' criminal history, and inquiring about applicants' criminal history until after it has been determined an applicant is otherwise qualified for the position unless the employer can demonstrate their decision is based on all available information, including frequency, recentness, and severity; and that the history is reasonably related or bears upon the duties and responsibilities of the position, or the applicant is a part of the final pool of candidates from which the job position will be filled and all of the applicants in the pool are asked. Also prohibiting publication of job advertisements, applications, or other forms used in the hiring process excluding applicants based on criminal history, inquiring into or requiring disclosures of criminal history on initial application forms, or seeking to obtain publicly available information concerning applicants' criminal histories unless required to exclude applicants with certain criminal histories due to local, state or federal law or regulation	1—3 Added	8.120.010—8.120.030
71075	1-21-2020	Streets—Pursuant to Ordinance 68937, authorizing the honorary street name Karlie Kloss Way, which shall begin at the intersection of Washington Ave. and N. 16th St. and run east on Washington Ave. to the intersection of Washington Ave. and N. 15th St		(not codified)
71076	1-21-2020	Streets—Vacating public surface rights for vehicle, equestrian, and pedestrian travel in Frederick St. beginning 140 ft. south of Bittner and extending ~ 556.125' ft. southwardly to a point and A 15 ft. wide north/south alley in C.B. 4240 beginning at the 20 ft. wide east/west alley and extending to another 15 ft. wide alley in the same City Block and A portion of the 20 ft. wide east/west alley in C.B. 424 beginning at Frederick St. and extending westwardly ~ 327.625' to a point (B.B. 4240 is bounded by Bittner, Frederick, Switzer and Christian) in the City		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71077	1-21-2020	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in westernmost 5 ft. of Missouri Ave. from Cherokee St. South approximately 115 ft. to a point, abutting City Block 1558 as bounded by Cherokee, Missouri, Potomac and Jefferson in the City		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71078	1-21-2020	Agreement—Authorizing and directing the Director of Airports and the Comptroller, owner and operator of the St. Louis Lambert International Airport to enter into and execute on behalf of the City the First Amendment to Automated Teller Machine Concession Agreement ("ATMCA"), AL-361 between the City and Bank of America, N.A., amending the ATMCA; the First Amendment was approved by the Airport Commission and is attached hereto as ATTACHMENT "1" and is made a part hereof		(not codified)
71079	1-21-2020	Streets Pursuant to Ordinance 68937, authorizing the honorary street name Malik and DeBorah Ahmed Way, which shall begin at the intersection of Semple Ave. and Page Blvd. and northeast on Page Blvd. to the intersection of Arlington Ave. and Page Blvd		(not codified)
71080	1-21-2020	Agreement—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute on behalf of the City the Third Amendment to Fuel System Lease and Use Agreement ("FSLUA"), AL-442 to the St. Louis Lambert International Airport FSLUA AL-442, between the City and STL Fuel Company, LLC, dated 12/22/11, and the First Amendment to FSLUA-442, dated 04/07/14, and the Second Amendment to FSLUA-442, dated 03/19/18; the Third Amendment was approved by the Airport Commission and is attached hereto as ATTACHMENT "1" and is made a part hereof		(not codified)
71081	2- 3-2020	Zoning—Approving the Redevelopment Plan for the 2612 Ann Ave. Area after finding that the Area is blighted		(not codified)
71082	2- 3-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 7202-7220 Arsenal St. Redevelopment Area after finding that the Area is blighted		(not codified)
71083	2- 3-2020	Zoning—Approving the Redevelopment Plan for the 5223 Botanical Ave. Area after finding that the Area is blighted		(not codified)
71084	2- 3-2020	Zoning—Approving a blighting study and Redevelopment Plan for the Evans Ave./N. Newstead Ave./Pendleton Ave. Scattered Sites Redevelopment Area after finding that the Area is blighted		(not codified)
71085	2- 3-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 2633-35 Allen Ave. Redevelopment Area after finding that the Area is blighted, as defined in RSMo. Section 99.320, 2016, as amended, finding that there shall be available five (5) year tax abatement based on 50% value of the assessed value of the incremental improvements; and pledging cooperation of the Board of Aldermen		(not codified)
71086	2- 3-2020	Zoning—Amending the Redevelopment Plan for the Washington/Vandeventer/Enright/Pendleton Redevelopment Area approved by Ordinance #69519 … by extending the implementation schedule now calling for projects to be completed by May 1, 2029		(not codified)
71087	2- 3-2020	Zoning—Amending the Redevelopment Plan for the Vandeventer/Finney/Washington/Taylor Redevelopment Area approved by Ordinance #69410 … by extending the implementation schedule now calling for projects to be completed by May 1, 2029		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71088	2- 3-2020	Transactions/Bonds—Authorizing the City to issue its Taxable Industrial Development Revenue Bonds in one or more series in a total principal amount of not to exceed $50,000,000 for the purpose of providing funds to pay the costs of acquiring, constructing, improving, and equipping an industrial development project in the City; approving a plan for such project; authorizing and directing the Mayor and the Comptroller to execute certain documents related thereto; and authorizing and directing the taking of other actions and approval and execution of other documents as are necessary or desirable to carry out and comply with the intent hereof		(not codified)
71089	2- 3-2020	Streets—Approving a Redevelopment Plan for the 2127 N. 11th St. Area after finding that the Area is blighted		(not codified)
71090	2- 3-2020	Zoning/Streets—Dissolving the Special Allocation Funds for Lafayette Square Historic District and 5700 Arsenal and terminating the designation of a portion of the City as redevelopment areas and authorizing certain actions relating thereto		(not codified)
71091	2- 3-2020	Zoning/Streets—Dissolving the Special Allocation Funds for the Hadley Dean Building Redevelopment Area and terminating the designation of certain respective portions of the City, relating to that redevelopment area and authorizing certain actions relating thereto		(not codified)
71092	2- 3-2020	Zoning—Approving a Redevelopment Plan for the 3400 Chippewa St. and 3809 Louisiana Ave. Area after finding that the Area is blighted		(not codified)
71093	2- 3-2020	Zoning—Approving a Redevelopment Plan for the 3426 South Compton Ave. Area after finding that the Area is blighted		(not codified)
71094	2- 7-2020	Personnel—Amending Ordinances 69427 (as amended by Ordinance 70767) and 69427; in Ordinance 69427, the amended sections and added section pertain to City public works contracts, Tax Increment Finance Projects, Abated Projects, and City of St. Louis Bonded Projects, and workforce diversity; and apprenticeship training, construction workforce development, and a Community	1	3.110.010
			2	3.110.020—3.110.040
			3	3.110.050, 3.110.060
			4 Added	3.110.130
71095	2-11-2020	Employment—Prohibiting divisions of the City and certain departments from asking applicants for employment about their salary history, including wages, benefits, and any other compensation, unless otherwise provided therein	1, 2 Added	4.65.010, 4.65.020
71096	2-11-2020	Grants—Authorizing and directing the Fire Commissioner, on behalf of the Mayor and the City, to enter into and execute a Grant Agreement with the U.S. Department of Homeland Security, Federal Emergency Management Agency, through the Missouri Department of Homeland Security, for the purpose of funding to support the Cybersecurity Coordinator position at the St. Louis Fusion Center …, and to expend funds by entering into contracts or otherwise for grant purposes		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71097	2-11-2020	Grants—Authorizing the Director of DHS, by and through the St. Louis Area Agency on Aging and on behalf of the City, to accept a Grant Award from the St. Louis Community Foundation in the amount of $26,000 for the current fiscal year and to expend those funds for the City "You Matter! Motivating Low Income Older Persons to complete the Census" program as set forth in the Grant Award Agreement; … appropriating such funds and authorizing the Director of DHS, … to expend such funds as permitted by the Grant Award Agreement		(not codified)
71098	2-27-2020	Streets—Directing the Director of Streets to permanently close, barricade, or otherwise impede the flow of traffic in the north-south bound, approximately 240 linear ft. alley located between Palm Street and Lexington Avenue in C.B. 4456, appx. 95 linear ft. east of Kingshighway Memorial Boulevard east curb line		(not codified)
71099	2-27-2020	Personnel—Regulating employer and employee working relationships between the City and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; repealing Ordinance 70791; allocating certain other employees to a grade with rate	1 Rpld	4.10.010—4.10.280 4.10.300
			Added	4.10.010—4.10.270
71100	3- 6-2020	Budget—Making a supplemental appropriation to the Annual Budget Ordinance 70963 for Fiscal Year '19—'20, amounting to $250,000.00		(not codified)
71101	3- 6-2020	Agreement—Authorizing the Amendment to Ground Lease ("Amendment") between the City and Lucas-Hunt Associates, L.P., a Missouri Limited Partnership, for property and improvements commonly known as the Hampton Gardens Apartments located at 5927 Suson Place, St. Louis, MO 63139		(not codified)
71102	3- 6-2020	HIPAA—Pertaining to HIPAA; amending Ordinance 68109 … by re-designating the City's Hybrid Entity Health Care Components to add the Department of Health Care Components to add the Department of Health of the City of St. Louis as such		(not codified)
71104	3-18-2020	Concealed Firearms—Prohibiting the carrying of concealed firearms by persons who are subject to a restraining order or who have been convicted of misdemeanor crime of domestic violence, and the firearm such person is in receipt of has been shipped or transported in interstate or foreign commerce as prohibited by Title 18, Section 922g(8) and (9) of the United States Code	1—3 Added	15.130.090
71106	3-18-2020	Temporary Food Permits—Creating and defining six (6) Temporary Food Permit Types with a permit fee schedule	1	11.42.040
			2—4	11.42.160
71111	3-18-2020	Commercial Vehicles—Prohibiting such traffic along West Park Avenue from the eastern boundary of Hampton Avenue to the eastern boundary of Hugh's Place; exempting from said prohibition non-commercial pickup trucks, emergency vehicles, including privately-owned tow trucks when providing emergency service to non-commercial vehicles, vehicles making deliveries to nearby addresses, and vehicles with a gross vehicle weight (GVW) of ten thousand (10,000) pounds or greater	1—5 Added	17.185.010—17.185.050

Ordinance Number	Date	Description	Section	Section this Code
71114	3-25-2020	Zoning—Approving a blighting study and Redevelopment Plan for the Goodfellow Blvd./West Florissant Ave. Scattered Sites Redevelopment Area after finding that the Area is blighted		(not codified)
71115	3-25-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 5311-6123 and 5302-6122 Dr. Martin Luther King Dr. Redevelopment Area after finding that the Area is blighted		(not codified)
71116	3-25-2020	Zoning—Approving a Redevelopment Plan dated 11/19/19 for the La Saison Scattered Sites Area after finding that the Area is blighted		(not codified)
71117	3-25-2020	Zoning—Approving a Redevelopment Plan dated 11/19/19 for the 4500-4540 Swan Ave. and 1305 & 1305R South Taylor Ave. after finding that the Area is blighted		(not codified)
71118	3-25-2020	Zoning—Approving a Redevelopment Plan dated 11/19/19 for the 618-624 & 700-702 N. 2nd St. Area after finding that the Area is blighted		(not codified)
71119	3-25-2020	Agreement—Amending Ordinance 65570, authorizing the First Amendment to Lease, Assignment, and Sublease among The City of St. Louis, Missouri, 14580 MO Bottom LLC and Kienstra Materials Company, LLC prescribing the form and details of said First Amendment; authorizing other related actions in connection with such agreement		(not codified)
71120	3-25-2020	Health—Amending Ordinance 70607, concerning the Commission of Health's Authority, Asbestos, Performance-based fee schedules related to asbestos and demolition air pollution		(not codified)
71121	3-25-2020	Deeds—Authorizing and directing the Mayor and Comptroller to execute, upon receipt of and in consideration of the sum of $250.00 and other good and valuable consideration, a Quit Claim Deed to remise, release, and forever quit-claim unto Julia D. Lopez and Veronica A. Nold certain City-owned property located in City Block 5114 (4219 Gibson Ave.)		(not codified)
71122	3-25-2020	Deeds—Authorizing and directing the Mayor and Comptroller to execute, upon receipt of and in consideration of the sum of $1250.00 and other good and valuable consideration, a Quit Claim Deed to remise, release, and forever quit-claim unto the Transgender Memorial, LLC certain City-owned property located in City Block 3984 (1469-1473 & 1485-1487 S. Vandeventer)		(not codified)
71123	3-25-2020	Waste—Regulating the storage, transportation and disposal of waste tires; requiring waste tire haulers to register with DPS, and tire dealers, waste tire processing facilities, and waste tire holding sites obtain permits from DPS; and providing penalties for violations of the provisions thereof	1—15 Rpld Added	11.70.010—11.70.030 11.70.010—11.70.150
71124	3-25-2020	Agreement—Repealing Ordinance 63107, relating to a lease between the City, Missouri and Manufacturers Railway Company, a subsidiary of Anheuser-Busch Companies, Inc., authorizing the execution of a new Lease Agreement between the same parties under certain terms and conditions, for a period of five years with four five-year mutual options		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71125	5- 4-2020	Parks—Allows those issued a permit to reserve park amenities by the City's Department of Parks, Recreation and Forestry to exclude persons carrying firearms from the areas in accordance with RSMo 571.107(15), regardless of whether those persons carry the firearms concealed or whether they have a concealed carry permit	1 Added	22.16.190
71126	5- 4-2020	Streets—Establishing a four-way stop site at the intersection of North Garrison Avenue and Locust Street regulating all traffic traveling northbound and southbound on North Garrison at Locust and regulating all traffic traveling eastbound and westbound on Locust at North Garrison		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71127	5- 4-2020	Vendors—Establishing rules and regulations for vendors within the Kingshighway East, Kingshighway West, Penrose and Mark Twain neighborhoods, prohibiting vending on any LRA-owned property, prohibiting distribution or sale of newspapers, pamphlets, handbills, or other written or printed matter sold distributed for the purpose of disseminating information in the Kingshighway Memorial Boulevard Median…; requiring the Director of Streets to post No Vending, No Soliciting signs in both medians of Kingshighway Memorial Boulevard intersecting Natural Bridge; promulgating rules and regulations for vending within vending districts	1, 2	8.108A.010, 8.108A020
			4—23	8.108A.040—8.108A.230
			24—29	8.108A.240—8.108A.290
			30	8.108A.300
			31—35	8.108A.320—8.108A.370
71128	5- 4-2020	Streets—Permanently closing or impeding the flow of traffic on the 4300 block of Finney Ave. by blocking said traffic flow at the west curb line of Pendleton Ave. at the intersection of the 4300 block of Finney Ave. and Pendleton Ave		(not codified)
71129	5- 4-2020	Streets—Permanently closing or impeding the flow of traffic on the 4400 block of West Belle Place by blocking said traffic flow at the east curb line of N. Taylor Ave. at the intersection of the 4400 block of West Belle Place and North Taylor Ave		(not codified)
71130	5- 4-2020	Zoning—Rezoning 8201 and 8221 Minnesota Ave. from the "B" Two-Family Dwelling District to the "E" Multiple-Family Dwelling District in City Block 3209		(not codified)
71131	5- 4-2020	Zoning Rezoning 4478 & 4484 Vista Avenue from the "NG2" Neighborhood General Type 2 to the "NC2" Neighborhood Center Type 2 only in the Forest Park Southeast Form-Based District, and to change the boundaries of the NG2 and the NC2 Zones as shown in Amended Exhibits B & C		(not codified)
71132	5- 4-2020	Energy—Establishing energy performance standards for certain buildings in the City of St. Louis	1—8 Added	25.71.010—25.71.080
			11, 12 Added	25.71.090, 25.71.100
71133	5- 4-2020	Sheriff—Amending 70714 with respect to appointment and salaries of Employees in the Sherriff's Office, pursuant to Section 82.610		(not codified)
71134	5- 4-2020	Works/Streets/Parks—Authorizing the 2020 50/50 Sidewalk Program and the 2020 St. Louis Works Program, which provide for the construction and repair of items like streets, sidewalks, alleys, traffic control, and tree plantings by appropriating $5.5M from the Street Improvement Fund		(not codified)
71135	5- 5-2020	Grant Authorizing the Fire Commissioner to enter into and execute an Intergovernmental Transfer Agreement with the Missouri Department of Social Services MO Healthnet Division for a Ground Emergency Medical Transportation (GEMT) program for uncompensated Medicaid cost associated with GEMT services, establishing a fund from which to pay the non-federal share of the reconciled costs reimbursements and the administrative fee, providing for appropriation of the funds		(not codified)
71136	5- 5-2020	Streets Conditionally vacating the northern 120 feet of the north-south alley in City Block 1880 as bounded by Cote Brilliante, Gran, Aldine and Spring		(not codified)
71137	5- 7-2020	Redevelopment Plan—Approves plan for 3974 Sarpy Ave. after finding that the area is blighted		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71138	5- 7-2020	Redevelopment Plan—Approves plan for 5476 Dempsey Ave. and 5027 Daggett Ave. after finding that the areas are blighted		(not codified)
71139	5- 7-2020	Redevelopment Plan—Approves plan for 3765 Lindell Blvd. after finding that the area is blighted		(not codified)
71140	5- 7-2020	Redevelopment Plan—Approves plan for 4565-4591 McRee Ave. after finding that the area is blighted		(not codified)
71141	5- 7-2020	Redevelopment Plan—Approves blighting study and plan for 3808 Wilmington Ave. after finding that the area is blighted		(not codified)
71142	5- 7-2020	Redevelopment Plan—Approves blighting study and plan for 3933 Delor St. after finding that the area is blighted		(not codified)
71143	5- 7-2020	Redevelopment Plan—Approves plan for 300 North Tucker Blvd. after finding that the area is blighted		(not codified)
71144	5- 7-2020	Redevelopment Plan—Approves blighting study and plan for 6924 Idaho Ave. after finding that the area is blighted		(not codified)
71145	5- 7-2020	Redevelopment Plan—Approves plan for 1501 S. 7th St. after finding that the area is blighted		(not codified)
71146	5- 7-2020	Health—Amending 70607, concerning the Commission of Health's Authority, Asbestos, Performance-based schedules related to asbestos and demolition air pollution, and Penalties; making changes for clarity and readability	4	11.34.030
			11	11.34.110
			18	11.34.240
			20	11.34.250
71147	5- 7-2020	Redevelopment Plan—Approves blighting study and plan for 5258 and 5268 Maple Ave. after finding that the area is blighted		(not codified)
71148	5- 7-2020	Redevelopment Plan—Approves and plan for the Jefferson/Gamble/Elliott/Mills area after finding that the area is blighted		(not codified)
71149	5- 7-2020	Redevelopment Plan—Approves and plan for 4101 North Grand Blvd. after finding that the area is blighted		(not codified)
71150	5- 7-2020	Streets—Conditionally vacating 15 foot wide north/south alley beginning at Pershing and extending northwardly to a point bordering the wide east/west alley bounded by Waterman, Clara, Pershing, and DeBaliviere		(not codified)
71151	5- 7-2020	Streets—Conditionally vacating 15 foot wide alley as bounded by Locust, 7th, Olive, and 8th Streets		(not codified)
71152	5- 7-2020	Agreement—Authorizing the Execution of a Maintenance Agreement for InterCo Plaza		(not codified)
71153	5- 7-2020	Agreement—Authorizing the Execution of a Cooperation Agreement for portions of Hadley Street and Dr. Martin Luther King Dr		(not codified)
71154	5- 7-2020	Police—Amending 25.64.010 to include a $150.00 charge to cover City costs for providing police escorts during Building Division demos, repairs, board-ups, and clean-ups	1	25.64.010
71155	5- 7-2020	Streets—Conditionally vacating 15 foot wide east/west alley in Tillie Ave. from Frederick to Newby, as bounded by Tillie, Frederick, Baden, and Newby		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71156	5- 7-2020	Streets—Conditionally vacating Gilmore Avenue between Union Pacific Railroad Right of Way and Switzer Avenue		(not codified)
71157	5- 7-2020	Streets—Amending 68604 (codified in Section 20.46.010 of the City of St. Louis Revised Code of Ordinances) concerning fees for street blocking permits; repealing the residential street blocking permit requirements and fees and implementing requirements and fees for high "volume areas" and low "volume areas," as defined in the Bill	1	20.46.010
71158	5- 7-2020	Streets—Authorizing the honorary street name William A. Pearson Street, beginning at the intersection of North Cardinal Avenue and Franklin Avenue to Samuel Shepard Drive		(not codified)
71159	5- 7-2020	Streets—Authorizing the honorary street name, Alderman Samuel Moore Way, at the intersection of Garfield Avenue and Newstead Avenue		(not codified)
71160	7-10-2020	Budget—City's Annual Budget Appropriation for FY '20—'21, equaling $1,116,375,497, is appropriated from Revenue and Special Funds named for the purposes described therein		(not codified)
71161	6- 5-2020	Administrative—Repealing 70154 and enacting a new provision to comply with the deferral Setting Every Community Up for Retirement Enhancement Act of 2019, changing the age requirement for the "required beginning date" for persons who are 70½ years old after 12/31/19	1	4.16.060.F
71162		No information		
71163	6-10-2020	Zoning—Repealing 70973, and revising the name of the relevant parking district to "5347-5353 Nottingham Parking District", and adding to the district area along the northern property line of 5347-5353 Nottingham Ave		(not codified)
71164	6-10-2020	Budget—Transferring $5M from the Parking Meter Fund to the General Reserve Fund to offset COVID-19-related expenditures from the General Reserve fund, and offset the City's costs incurred to protect the public		(not codified)
71165	6-10-2020	Budget—Assisting the City in financing its cash flow requirements during FY '20—'21, to allow it to cover periods of temporary cash flow deficits resulting from uneven revenue flows		(not codified)
71166	7- 9-2020	Zoning—Changes at 4172 and 4178 Folsom Ave. from "D" Multiple-Family Dwelling District and "F" Neighborhood Commercial District to the "D" Multiple-Family Dwelling District only		(not codified)
71167	7- 9-2020	Zoning—Establishing the "Iron Hill Planned Unit Development District"		(not codified)
71168	7- 9-2020	Zoning—Changes 5637 Pershing Ave. from "E" Multiple-Family Dwelling District to the "H" Area Commercial District		(not codified)
71169	7- 9-2020	Zoning—Changes 614 Lake Ave. (currently 5165 Washington Place) from "B" Two-Family Dwelling District to the "H" Area Commercial District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71170	7- 9-2020	Zoning—Changes 2600-12 and 2601-29 Stoddard St., 1121 N Jefferson Ave, 2606, 2608, 2610, 2612, 2614, 2616, 2618, 2620, 2622, 2624, 2626, 2628, & 2630 Gamble St. from "C"/"G" Multiple-Family Dwelling District and Local Commercial and Office District and "F" Neighborhood Commercial District to the "H" Area Commercial District		(not codified)
71171	7- 9-2020	Zoning—Changes 1501 & 1501E S. 7th Blvd. and 1400 S. 8th St. from "J" Industrial District to the "G" Local Commercial and Office District		(not codified)
71172	7- 9-2020	Tax/Budget—Directing Treasurer to deposit funds received pursuant to the Transit Sales Tax (pursuant to RSMo. Section 94.660) into the "City Public Transit Sales Tax Trust Fund-Account ONE" appropriating $9.354M from the said sales tax to the Bi-State Development Agency for certain purposes		(not codified)
71173	7- 9-2020	Tax/Budget—Directing Treasurer to deposit funds received pursuant to the Transit Sales Tax (pursuant to RSMo. Section 94.660) into the "City Public Transit Sales Tax Trust Fund-Account TWO" appropriating $9.354M from the said sales tax to the Bi-State Development Agency for certain purposes		(not codified)
71174	7- 9-2020	Recorder—Amending 70336 with respect to appointment and salaries of Employees in the Recorders' Office, pursuant to Section 82.610	1 Rpld	4.34.010—4.34.100
			2—7 Added	4.34.010—4.34.060
71175	7- 9-2020	Agreement—Authorizing … the owner and operator of St. Louis Lambert International Airport to accept a First Supplemental Agreement to Airport Aid Agreement for Project No. AIR 196-113C-1 … for the marketing and promotion of air service at the Airport for a maximum obligation of $515,000 for the reimbursement of direct costs associated with the projects funded under the Grant Agreement.		(not codified)
71176	7- 9-2020	Streets—Approving the name "Robert Ruggeri Place" for a new public street located in City Block 4084 in the approved La Collina subdivision		(not codified)
71177	7- 9-2020	Budget—Appropriating payment of the operating expenses and capital expenses … of the Parking Division of the Treasurer's Office for fiscal year '20—'21, in the sum of $17,560,584, including $1,930,335 for Capital Improvements		(not codified)
71178	7- 9-2020	Agreement—Authorizing the Director of the DOH to enter into and execute a Contractor Agreement with the National Association of County and City Health Officials (NACCHO) as part of the CDC grant, #6NU38OT000306-02-01, CFDA #93.421 to fund use of a Public Health & Safety Team (PHAST) toolkit, … and to expend funds by entering into contracts or otherwise for the grant purposes		(not codified)
71179	7- 9-2020	Port Authority—Enlarging the boundaries of the City of St. Louis Port Authority (the "Port Authority"), subject to the approval of the MO Highways and Transportation Commission, and authorizing and directing certain actions by the Port Authority.		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71180	7- 9-2020	Proposed Charter Amendment—Submitting to the qualified voters of the City, a proposal to revise Section 2 of Article VIII of the City of St. Louis Charter, which requires City employees to reside within the boundaries of the City and thus allow said employees, except for City agency and Department Directors appointed by the Mayor, to reside outside the City …		(not codified)
71181	7- 9-2020	Budget—Annual appropriation in the sum of $17,860,000 … for the period stated, … which is appropriated out of the "Transportation Trust Fund" to the Bi-State Development Agency for transportation purposes		(not codified)
71182	7- 9-2020	Grant—The BoA authorizes the receipt of and appropriates funds under the CARES Act, the Federal Emergency Management Act Grant Program, the Bureau of Justice Assistance Coronavirus Emergency Supplemental Funding Program, the Community Development Block Grant Program, the Emergency Solutions Grant Program, and the Housing Opportunities for People with Aids and Ryan White Grant Programs, all relating to the COVID-19 pandemic		(not codified)
71183	7- 9-2020	Zoning—Approving the petition of an owner of certain real property to establish a Community Improvement District, establishing The Forest Park TOD Community Improvement District, and finding a public purpose for The Forest Park TOD Community Improvement District's establishment		(not codified)
71184	7- 9-2020	Zoning—Establishing the Iron Hill Community Improvement District as a political subdivision of the state of Missouri; confirming the prior determination that real estate within the Iron Hill Community Improvement District is a blighted area; and finding a public purpose for the establishment of the Iron Hill Community Improvement District; approving appointment of the initial board of directors		(not codified)
71185	7- 9-2020	Zoning—Approving the Petition for the Creation of the Soccer Stadium Community Improvement District; establishing the Soccer Stadium Improvement District as a political subdivision of the State of Missouri; and declaring the Soccer Stadium Improvement District to be located in a blighted area		(not codified)
71186	7- 9-2020	Police—Codifying into law the SLMPD Use of Force Policy Special Order, SO1-01, including: a ban on officers from using chokeholds or strangleholds as a use of force method; a requirement for officers to use de-escalation tactics when appropriate and possible in place of use of force tactics; to establish a duty to intervene policy; ban on no knock warrants; and include comprehensive reporting requirements	1—5 Added	15.185.010—15.185.050
71187	7- 9-2020	Proposed Tax—Imposition of a gross receipts tax on telecommunications providers and fiber network providers that aren't otherwise subject to such tax.		(not codified)
71188	7-24-2020	Deeds—Authorizing the Mayor the Comptroller to execute, upon receipt of and in consideration of the sum of $10.00 and other good and valuable consideration, a Quit Claim Deed to remise, release and forever quit-claim unto the Board of Education certain City-owned property located in City Block 0362 (1100 Monroe St., St. Louis, MO 63106; 1101 Madison St., St. Louis, MO 63106)		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71189	7-24-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 4500-4510 S. Kingshighway Blvd. Redevelopment Area after finding that the Area is blighted		(not codified)
71190	7-24-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 4314 Itaska St. Redevelopment Area after finding that the Area is blighted		(not codified)
71191	7-24-2020	Zoning—Approving a Redevelopment Plan for the 5633-5637 Botanical Ave. Area after finding that the Area is blighted		(not codified)
71192	7-24-2020	Parks—Enacting a curfew for Chambers Park, Jet Banks Park, Norman Seay Park, Terry Park, and Tiffany Park, prohibiting individuals from idling, wandering, strolling, playing or otherwise being in or upon the premises of said parks, and the public areas immediately adjacent to said parks daily between 7:00 p.m. and 7:00 a.m.	1 Added	22.18.028
71193	7-24-2020	Licensing—Imposing caps on fees and commissions charged by third-party delivery services; requiring third-party delivery services to obtain a business license; requiring third-party delivery services to disclose policies regarding base wage and gratuities for delivery workers and preventing third-party delivery services from reducing base pay or gratuities for delivery drivers	1—5 Added	8.122.010—8.122.050
71194	7-24-2020	Zoning—Approving a Redevelopment Plan dated 01/21/20 for the 3603 Cass Ave. Area after finding that the Area is blighted		(not codified)
71195	7-24-2020	Zoning—Approving a Redevelopment Plan dated 01/21/20 for the 1417-1433 Tower Grove Ave. Area after finding that the Area is blighted		(not codified)
71196	7-24-2020	Zoning—Approving a Redevelopment Plan dated 02/25/20 for the 1800-1808 Washington Blvd. Area after finding that the Area is blighted		(not codified)
71197	7-24-2020	Zoning—Approving a Redevelopment Plan dated 01/21/20 for the 3535-3537 Missouri Ave. Area after finding that the Area is blighted		(not codified)
71198	7-24-2020	Zoning—Approving a Redevelopment Plan dated 02/25/20 for the 811-817 N. Kingshighway Blvd. Area after finding that the Area is blighted		(not codified)
71199	7-24-2020	Zoning—Approving a Redevelopment Plan dated 02/25/20 for the 5143 Delmar Blvd. Area after finding that the Area is blighted		(not codified)
71200	7-24-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 5078, 5080-5090 Delmar Blvd. Area after finding that the Area is blighted		(not codified)
71201	7-24-2020	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in Elliott from N Market northwardly ~203.13 ft. to a point previously vacated by Ordinance 67779 and Leffingwell from N Market northwardly ~265.02 ft to a point previously vacated by Ordinance 65271		(not codified)
71202	7-24-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 310 DeBaliviere Ave. Redevelopment Area after finding that the Area is blighted		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71203	7-24-2020	Agreement Making certain findings with respect to the transfer of up to $4,500,000 of excess moneys that the City, the owner and operator of St. Louis Lambert International Airport, intends to transfer from the Debt Service Stabilization Fund (the "DSSF") to the Operation and Maintenance Fund (the "O&M Fund"), in accordance with Section 516.B of the Lambert St. Louis International Airport Indenture of Trust between the City, as Grantor, and UMB Bank, N.A., as Trustee		(not codified)
71204	7-24-2020	Parking—Amending Section 1 of Ordinance 62101, codified in Ch. 17.62.010: designating the Parking Commissioner as chairperson of the Parking Commission; and designating the Parking Commission as the City's authority responsible for overseeing public parking, including planning and coordinating public parking policies, programs, and operations for any parking facility or area that is owned, leased, or otherwise managed or controlled by the parking division whether in whole or part; establishing the duties and responsibilities of the Parking Commission; establishing the duties and responsibilities of the Treasurer as the supervisor of parking meters	1	17.62.010
71205	7-24-2020	Zoning—Approving a Redevelopment Plan dated 05/26/20 for the 3306 Washington Blvd. Area after finding that the Area is blighted		(not codified)
71206	7-24-2020	Zoning—Approving a blighting study and Redevelopment Plan for the 4635 and 4627 Ridgewood Ave. Redevelopment Area after finding that the Area is blighted		(not codified)
71207	7-24-2020	Zoning—Approving a Redevelopment Plan dated 04/21/20 for the 3919 and 3920 Minnesota Ave. Area after finding that the Area is blighted		(not codified)
71208	7-24-2020	Agreement—Authorizing and directing the Director of Airports and the Comptroller, owner and operator of St. Louis Lambert International Airport to enter into and execute on behalf of the City the Second Amendment to Banking Concession Agreement, AL-278 between the City and U.S. Bank National Association, amending the Banking Concession Agreement AL-278		(not codified)
71209	7-24-2020	Licensing—Amending Ordinances 69346, 68536, and 68786 to allow the following: permitting drink license holders to sell intoxicating beverages not in their original package for consumption on or off the licensed premises; permitting licensed restaurants or bars to sell intoxicating beverages for consumption on or off the licensed premises; permitting Sunday Drink License holders to sell intoxicating beverages for consumption on or off the licensed premises; permitting licensed persons to sell intoxicating beverages at retail not in their original package; permitting the refilling of liquor; creating an exception to the prohibition on the sale of intoxicating beverages to persons in an automobile; containing a sunset clause		(not codified)
71210	7-24-2020	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in 1) the 15 ft. wide alley in City Block 969 as bounded by Gamble, Jefferson, Stoddard and Elliott; 2) Stoddard, from Jefferson to Elliott; 3) the 15 ft. wide alley in City Block 968 as bounded by Stoddard, Jefferson, Mills and Elliott in the City, as hereinafter described, … and imposing certain conditions on such vacation		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71211	7-24-2020	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in 20 ft. wide east/west alley in City Block 941 as bounded by Dr. Martin Luther King Drive, 19th St., Delmar Blvd., and 20th St. in the City, as hereinafter described, … and imposing certain conditions on such vacation		(not codified)
71212	7-24-2020	Amending Ordinance 60561 and Chapter 8.108A of the Revised Code of the City of St. Louis, pertaining to vendors, to prohibit persons from offering or permitting the offering for free any goods, wares, merchandise, flowers, horticulture products, services, food or beverage, regardless of value, or any coupon, certificate, ticket, voucher, or rebate offer regardless of value, as an inducement to purchase other goods or services or draw customers to a store, business, website, or other online platform in order to stimulate sales of goods or services, except in those areas designated as Vending Districts and amending the definition of the term "vend or vending" and defining the term "coupon" as such terms used herein	1, 2	8.108A.010, 8.108A.020
71213	7-24-2020	Agreement—Approving the First Amendment to the Soccer Stadium Redevelopment Plan and the First Amendment to Master Redevelopment Agreement; authorizing and directing the taking of other actions and approval and execution of other documents as are necessary or desirable to carry out and comply with the intent thereof		(not codified)
71214	7-24-2020	Zoning—Renewing previous determinations made by Ordinances 66847 and 66985, as renewed by Ordinances 68754 and 70119 for the Redevelopment Area; finding that the redevelopment of such area is necessary and in the public interest under Chapter 353 of the RSMo. 2016, and under Chapter 11.06 of the St. Louis Municipal Code, and is in the interest of the peace, public health, safety, morals, and general welfare of the people of the City; renewing the certificate of public convenience and necessity granted by the City to CORTEX to exercise the power of eminent domain within the Redevelopment Area		(not codified)
71215	7-24-2020	Streets—Establishing a three-way stop site at the intersection of Folsom Ave. and Klemm St., regulating all traffic traveling east-/westbound on Folsom Ave. at Klemm St., and regulating all traffic traveling northbound on Klemm St. at Folsom Ave		(not codified)
71216	7-24-2020	Streets—Establishing a four-way stop site at the intersection of McRee Ave. and Klemm St., regulating all traffic traveling north-/southbound on Klemm St. at McRee Ave., and regulating all traffic traveling west-/eastbound on McRee Ave. at Klemm St		(not codified)
71217	7-24-2020	Amending the duties of the Division of Health & Hospitals; directing the Commissioner of Corrections to begin the process of closing the City's Medium Security Institution (the Workhouse); directing the Budget Director to analyze the net cost savings to the general fund if the Workhouse is no longer operated as a detainee facility.		(not codified)
71218	10-13-2020	Streets-Conditionally vacating public rights in a part of Montgomery Street		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71219	10-26-2020	Personnel—Amending 71099 to amend employee holiday schedule and otherwise allow for personal holidays and leaves of absence	1	4.10.160
71120	10-26-2020	Grants-Authorizes receipt of and appropriates funds under the ESG program of HUD, under the State's Assistance to Local Election Authorities program, and the Dept of Health and Human Services; Relief fund, all related to COVID-2019		(not codified)
71221	10-29-2020	Airport-Authorizes the Director of Airports to amend payment obligations of airport concessionaires by abatement of minimum annual guarantees and payment fees		(not codified)
Amd. of	11- 3-2020	Municipal Elections	Added	2.08.450—2.08.490
71222	11- 9-2020	Streets-Amending the legal description of Stoddard Street that was conditionally vacated in Ordinance 71210		(not codified)
71223	11- 9-2020	Grants/Fire Division-Authorizes the Fire Commissioner to execute a grant agreement with U.S. Dept of Homeland Security for funding of a Cybersecurity Coordinator position at the St. Louis Fusion Center and to expend such funds		(not codified)
71224	11- 9-2020	Grants/Fire Division-Authorizes the Fire Commissioner to execute a grant agreement with U.S. Dept of Homeland Security and other agencies to fund the 2019 Smoke and CO alarm program and to expend such funds		(not codified)
71225	11- 9-2020	Grants/Elections-Authorizes the Board of Election Commissioners to accept the Center for Tech and Civic Life Covid grant and to expend such funds		(not codified)
71226	11- 9-2020	Zoning—Changes at 5720 DeGiverville from "A" Single-Family Dwelling District and "H" Area Commercial District to the "H" Area Commercial District only		(not codified)
71227	11- 9-2020	Zoning—Changes at 1297 Amherst Place from "B" Two-Family Dwelling District to the "F" Neighborhood Commercial District only		(not codified)
71228	11- 9-2020	Land Sales—Authorizing the transfer by quitclaim deed of 3724 Aldine upon payment of $250		(not codified)
71229	11- 9-2020	Zoning—Rezoning 510 S. Sarah Street from "K" Unrestricted District to the "J" Industrial District		(not codified)
71230	11- 9-2020	Zoning—Rezoning 6839 Fyler Avenue from the "A" Single-Family Dwelling District to the "F" Neighborhood Commercial District		(not codified)
71231	11- 9-2020	Zoning—Rezoning 235-39 S. Boyle Avenue and 4317-4347 Duncan Avenue from the "J" Industrial District to the "H" Area Commercial District		(not codified)
71232	11- 9-2020	Zoning—Rezoning 3600 and 3620 Texas Avenue from "B" Two-Family Dwelling District to the "D" Multiple-Family Dwelling District		(not codified)
71233	11- 9-2020	Zoning—Rezoning 1400 Tower Grove Avenue and 4238 & 4250-54 Vista Avenue from the "NG2" Neighborhood General Type 2, "NG3" Neighborhood General Type 3 and "B2" Boulevard Type 2 to the "B2" Boulevard Type 2 only in the Forest Park Southeast Form-Based District		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71234	11- 9-2020	Port Authority—Authorizes a five-year lease with 4 five-year mutual options of renewal of an unimproved wharf near Victor Street for anchorage and mooring of barges and other vessels		(not codified)
71235	11- 9-2020	Port Authority—Repealing Ordinance 66625 and terminating a lease agreement with Eagle Marine Industries for drydock near Lesperance Street and Lafayette Avenue		(not codified)
71236	11- 9-2020	Port Authority—Amends Ordinance 69381 to allow the City to amend its lease with Great Rivers Greenway to permit the Walsh Construction Company to rebuild the Merchants Bridge and use certain leased area for access and staging		(not codified)
71237	11- 9-2020	Port Authority—Amends Ordinance 68573 to allow an amendment to the dock and mooring lease with Terminal Railroad Association to increase the annual rent		(not codified)
71238	11- 9-2020	Port Authority—Amends Ordinance 68574 to allow an amendment and extension of a lease with Lewis & Clark Marine, Inc. for an unimproved wharf and for mooring near Tyler Street		(not codified)
71239	11- 9-2020	Streets—Closing traffic flow at the east curb line of North Kingshighway Blvd at Maple Avenue		(not codified)
71240	11- 9-2020	Streets—Prohibits commercial vehicles from travelling along CD Banks Avenue from the eastern boundary of N. Newstead Avenue to the eastern boundary of Pendleton Ave		(not codified)
71241	11-19-2020	Grant—Authorizes receipt of $2,390,776 in Community Development Block Grant Funds related to COVID-19 and appropriates those funds to the Community Development Administration		(not codified)
71242	11-19-2020	Amending Section 6A.4 of Ordinance 69382 to increase monthly permit fees for Off-Airport Rental Car Operators		(not codified)
71243	11-19-2020	Airport—Directs the Director of Airports and the Comptroller to extend terms of certain On Airport Passenger Vehicle Rental Concession Agreements		(not codified)
71244	11-19-2020	Airport—Directs the Director of Airports and the Comptroller to an amendment to an operating agreement with ABM Aviation		(not codified)
71245	11-19-2020	Public Safety—Authorizes the Director of the Dept of Public Safety and the Police Commissioner to enter into an agreement with the U.S. Department of the Interior for cooperative law enforcement, including at the Gateway National Park		(not codified)
71246	11-19-2020	Grants—Authorizing submittal of the Annual Action Plan and appropriating CDBG, HOME, ESG, and HOPWA program funds		(not codified)
71247	11-24-2020	Tax—Submitting to the voters pursuant to Section 92.115 RSMo, the question of whether to continue the earnings tax for a period of five years		(not codified)
71248	11-24-2020	Grants—Authorizing Acting Director of Dept of Health to accept a grant from the Centers for Disease Control related to STI and HIV programs		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71249	12- 1-2020	Buildings and Construction—Promoting use of the Downtown Steam Distribution System for projects seeking incentives and prohibiting the Clean Energy Development Board from approving financing for a project disconnecting from the system for heat		(not codified)
71250	12- 1-2020	Redevelopment Plan—Amends Ordinance 67870 and the North Broadway/Carrie Ave/Harris Ave. Redevelopment plan to allow 15 years of tax abatement and extending the deadline for completion to February 1, 2025		(not codified)
71251	12- 1-2020	Redevelopment Plan—Approves the Chapter 99 Redevelopment Plan and blighting study for 81-805 & 813 North 2nd St. Redevelopment Area with a 10-year tax abatement at 90%		(not codified)
71252	12- 1-2020	Redevelopment Plan—Approves the Chapter 99 Redevelopment Plan and blighting study for 505 Washington Ave. Redevelopment Area with a 10-year tax abatement at 80%		(not codified)
71253	12- 1-2020	Redevelopment Plan—Amends Ordinance 70717 and the 300 South Broadway Redevelopment Plan, allowing for ten years of tax abatement at 90% instead of twenty years, extending the deadline for completion to 5 years, and calling for the rehabilitation of the building rather than demotion and new construction		(not codified)
71254	12- 1-2020	Redevelopment Plan—Authorizes issuance of additional tax increment financing Notes by approval of a Seventh Supplemental Trust Indenture to pay for infrastructure improvements in the St. Louis Innovation District Redevelopment Area established in Ordinance 69389		(not codified)
71255	12- 1-2020	Lease—Repeals Ordinance 68294 and 67089 and authorizes execution of a new lease agreement between the City and S.I. Warehousing Co., Inc. for a period of 10 years with two five-year and one four year mutual options for mooring rights at or near Barton Street		(not codified)
71256	12- 1-2020	Lease—Authorizes execution of a new lease agreement between the City and S.I. Warehousing Co., Inc. for a period of 10 years with three five-year mutual options for anchorage and mooring rights at or near Trudeau Street		(not codified)
71257	12-18-2020	Establishes a Special Business District to be known as the O'Fallon-Penrose Special Business District		(not codified)
71258	12-18-2020	Grant-Authorizes receipt of $240,163 in grant funds from Missouri Dept of Higher Education and appropriates such funds to the St. Louis Agency on Training and Employment		(not codified)
71259	12-18-2020	Legislation—Repeals Ordinance 63235 and adopts a new Chapter 1.01 adopting the 2020 Edition as the official Revised Code of the City of St. Louis	1 Added	1.01.010—1.01.070
71260	12-18-2020	Health and Safety—Amends Ordinance 70932 by amending the definition of "recreational fire" to change the minimum distance it must be from a structure to twelve feet	1	11.110.020(1)
71261	12-30-2020	Public Safety—Amends Ordinance 70624 to direct the Department of Public Safety and the City of St. Louis Sheriff to enter into an agreement regarding enforcement of Ordinance 70624		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71262	1-27-2021	Redevelopment Plan—Approves plan for 2732 59th St. after finding that the Area is blighted		(not codified)
71263	1-27-2021	Redevelopment Plan—Approves plan for 528 North Newstead Ave. after finding that the area is blighted		(not codified)
71264	1-27-2021	Redevelopment Plan—Approves plan for 5520 Daggett Ave. after finding that the area is blighted		(not codified)
71265	1-27-2021	Redevelopment Plan—Approves plan for 5509 Magnolia Ave. after finding that the area is blighted		(not codified)
71266	1-27-2021	Redevelopment Plan—Approves plan for 3712 and 3716 Nebraska Ave. and 3717, 3719, 3728, 3729 and 3730 Oregon Ave. after finding that the area is blighted		(not codified)
71267	1-27-2021	Redevelopment Plan—Approves plan for 4914 Daggett Ave. after finding that the area is blighted		(not codified)
71268	1-27-2021	Redevelopment Plan—Approves plan for 5266 Maple Ave. after finding that the area is blighted		(not codified)
71269	1-27-2021	Redevelopment Plan—Approves plan for 3620 Texas Ave. after finding that the area is blighted		(not codified)
71270	1-27-2021	Redevelopment Plan—Approves plan for 3170-3172 Oregon Ave. after finding that the area is blighted		(not codified)
71271	1-27-2021	Redevelopment Plan—Approves plan for the N. Newstead Ave./Lexington Ave./Whittier St./Kennerly Ave. Redevelopment Area after finding that the area is blighted		(not codified)
71272	1-27-2021	Redevelopment Plan—Approves plan for 7021 Iowa Ave. after finding that the area is blighted		(not codified)
71273	1-27-2021	Redevelopment Plan—Approves plan for 4320-4330, 4350 and 4350R S. Kingshighway Blvd Redevelopment Area after finding that the area is blighted		(not codified)
71274	1-27-2021	Streets—Authorizing the Director of Streets to close traffic on Vernon Avenue by blocking said traffic flow at the west curb line of N. Kingshighway Blvd		(not codified)
71275	1-27-2021	Streets—Amending Ordinance 71111 that prohibits traffic along West Park Ave from the eastern boundary of Hampton Ave to the easter boundary of Hughes Place, to extend said prohibition to include commercial traffic along Hughes Place		(not codified)
71276	1-27-2021	Streets—Conditionally vacating Louisa from Second eastwardly 167.50 feet		(not codified)
71277	1-27-2021	Redevelopment Plan—Terminating designation of 4494 Lindell as a redevelopment plan, repealing Ordinance 70157, and dissolving special allocating funds		(not codified)
71278	1-27-2021	Redevelopment Plan—Terminating designation of Maryland Plaza North, Convention Headquarters Hotel, 1141-1151 South Seventh Street, 1312 Washington and MLK Plaza area redevelopment plans and0 dissolving special allocation funds for those areas; repealing Ordinances 66420, 64928, 65724, 65910, and 65443, and dissolving special allocating funds		(not codified)
71279	2- 1-2021	Excise Laws—Amending Ordinance 68536, … presently codified in Chapter 14.06 of the Revised Code of the City of Saint Louis, affecting the City's Excise laws with respect to drink license licensing, employee related licensing requirements, and employee criminal background checks	1	14.06.100
			2	14.06.210
			3 Rpld	14.06.220
			4	14.06.240

Ordinance Number	Date	Description	Section	Section this Code
71280	2- 9-2021	Agreement—Amending Ordinance 70501, approving and authorizing the execution of a First Amendment to the Redevelopment Agreement between the City and Alterra Jefferson Arms, LLC, which will amend the definition of Redevelopment Project, require compliance with MBE/WBE and workforce and prevailing wage, and more		(not codified) Signed 02-09-21.
71281	2-11-2021	Streets—Conditionally vacating irregular portion of Pine Street from the W right of way line of 20th St. to the W right of way line of 21st St		(not codified)
71282	2-11-2021	Zoning—Establishing the Bevo Mill Area Special Use District; providing use and conditional use regulations for the Bevo Mill Area SUD		(not codified)
71283	2-11-2021	Streets—Conditionally vacating the 20 foot-wide east/west alley in City Block 6472, at 20th St. and extending westwardly to its terminus, and bounded by Olive on the north, 20th on the east, and Pine to the south		(not codified)
71284	2-11-2021	Streets—Amending Ordinance 70794 to adopt Chapter 25 of the 2018 International Building Code's changes on electric vehicle charging stations	1—3	25.01.020
71285	2-11-2021	Streets—Amending Ordinance 70795 to adopt Chapter 25 of the 2018 International Building Code's changes on electric vehicle charging stations	1—3	25.11.020
71286	2-11-2021	Tax—The Tax Increment Financing Plans listed in Exhibit A [of Board Bill #164AA] are making satisfactory progress, except those not on schedule with current completion projections		(not codified)
71287	2-11-2021	Airport—Allows Director of Airports and Comptroller to enter into and execute on behalf of the City the "Assignment and Assumption of Interest in Lease Agreement AL-230 and Consent of the City of St. Louis" between Spire CNG Inc., f/ka Laclede Venture Corp., and Spire Missouri, Inc. The City consents to the assignment by Assignor, to Assignee, all of Assignor's right, title, and interest in the Lease Agreement AL-230		(not codified)
71288	2-11-2021	Airport Provides financial incentives for air service at Lambert International Airport; encourages service at the Airport by new passenger and cargo airlines; adopts programs providing financial incentives for new airlines/air services at the Airport		(not codified)
71289	2-11-2021	Airport Airport Commission and Board of E&A provides for transfer of $1M that the City, the owner of Lambert International Airport, intends to transfer from the "Airport Development Fund" through the "Airport Contingency Fund" into the "Airport Revenue Fund" to fund the Airport's Air Service Incentive Program for FY 2021 through 2023. Total costs may not exceed $2.4M		(not codified)
71290	2-11-2021	Streets Conditionally vacating the triangular tract of land located at the northwest corner of 20th Street and Pine		(not codified)
71291	2-11-2021	Streets Conditionally vacating Second Street from Tyler South to terminus		(not codified)
71292	2-11-2021	Streets—Amending Ordinance 70797 to adopt Chapter 25 of the 2018 International Building Code's changes on electric vehicle charging stations	1—3	25.01.020

Ordinance Number	Date	Description	Section	Section this Code
71293	2-11-2021	Airport—Board of E&A and directing of Director of Airports and Comptroller to enter into and execute the OHM Concession Group, LLC, Local Concept Food and Beverage First Amended and Restated Concession Agreement, AL-120		(not codified)
71294	2-11-2021	Streets—Authorizing the honorary street name Dorothy Jackson Johnson Way, which shall begin at the intersection of Carter Avenue and Alice Avenue and run north on Alice Avenue to the intersection of Alice Avenue and West Florissant Avenue		(not codified)
71295	2-11-2021	Airport—Board of E&A and directing of Director of Airports and Comptroller to enter into and execute a Lambert International "First Amendment" to its Airport Use and Lease Agreement and its Airport Use and Lease Agreement with Cargo Addendum		(not codified)
71296	2-11-2021	Zoning—Changing zoning of property on the District Map from "C" Multiple-Family Dwelling District to the "G" Local Commercial and Office District, in City Block 2294 (3636 Page Blvd.), incl. parcel of land in City Block 2294		(not codified)
71297	2-11-2021	Zoning—Changing zoning of property on the District Map from "K" Unrestricted District to the "H" Area Commercial District, in City Block 9097 (4565, 4565R and 4591 McRee Avenue)		(not codified)
71298	2-11-2021	Zoning—Changing zoning of property on the District Map from "A" Single-Family Dwelling District to the "C" Multiple Family Dwelling District, in City Block 4634.05 (6135 Lloyd Avenue and 1515, 1517, 1521, & 1523 West Billion), incl. parcels of land in City Block 4634.05		(not codified)
71299	2-11-2021	Zoning—Changing zoning of property on the District Map from "K" Unrestricted District to the "H" Area Commercial District, in City Block 3918.03 (3700-20 Forest Park Avenue and 3850 Foundry Way), incl. parcels in City Block 3918.03		(not codified)
71300	2-11-2021	Grants—Board of E&A authorizing and directing the Mayor and Comptroller to enter into and execute an agreement or agreements with the United States Department of Housing and Urban Development's Office of Healthy Homes and Lead Hazard Control being offered pursuant to a Federal Fiscal Year 2020 Notice of Funding Availability (the "NOFA") for the Lead Hazard Reduction Demonstration Grant Program; and directing the Comptroller to issue warrants thereon upon the City Treasury		(not codified)
71301	2-11-2021	Zoning—Changing zoning of property on the District Map from "K" Unrestricted District to the "H" Area Commercial District, in City Block 320 (2006-06 & 2020 N 2nd Street), incl. parcels in City Block 320		(not codified)
71302	2-11-2021	Lease—Authorizing the execution of a new Lease Agreement between the City, Missouri, and United Fruit & Produce Company, for land at or near 2226 N. 1st Street for a period of five years with four five-year mutual options for the purpose of vehicle and trailer parking and storage at an annual base rent $1000 with a 2% annual escalator for the first five years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71303	2-11-2021	Streets—Repealing 59043, which closed Swan, Norfolk, and Vista Avenues at the east line of Taylor Avenue. Authorizes and directs the Director of Streets to reopen Norfolk and Vista Avenues, but to keep Swan Avenue closed		(not codified)
71304	2-11-2021	Grants—Authorizing and directing the Acting Director of the Department of Health to accept a $200,000 grant from the National Foundation for the Centers for Disease Control and Prevention, Inc., with a Project Name of COVID-19 Care Kits for Faith-Based Communities and known as Project #1085, upon approval by the Board of E&A, which expends funds by entering into contracts for the grant purposes		(not codified)
71305	2-11-2021	Streets Authorizing the honorary street name Kim Massie Way, which shall begin at the intersection of South Broadway and Cerre Street and run south on South Broadway to the intersection of South Broadway and Gratiot Street		(not codified)
71306	2-11-2021	Grants Authorizing and directing the Chief of Police to enter into and execute a Grant Agreement with the MO Department of Public Safety, Office of Homeland Security, to fund the 2020 Operation Legend grant program upon approval of the Board of E&A, and to expend funds by entering into contracts for grant purposes		(not codified)
71307	2-11-2021	Grants Authorizing and directing the Chief of Police to enter into and execute a Grant Agreement with the MO Department of Public Safety, Office of Homeland Security, to fund the 2019 Project Safe Neighborhoods Program, upon approval of the Board of E&A, and to expend funds by entering into contracts for grant purposes		(not codified)
71308	2-11-2021	Public Works—Establishing multiple public works and improvement projects within the City of St. Louis		(not codified)
71309	2-11-2021	Streets—Establishing a two-way stop site at the intersection of North Sarah Street and Westminster Place regulating all traffic traveling north bound and south bound at that intersection		(not codified)
71310	2-11-2021	Licenses—Prohibiting the issuance of any package or drink liquor licenses for any currently unlicensed premises within the boundaries of the First Ward, for a period of three years from the effective date of the ordinance; containing an exception allowing for the transfer of existing licenses during the moratorium period		(not codified)
71311	2-11-2021	Streets—Establishing two two-way stop sites at the eastern and western intersections of Whittier Street and Washington Boulevard, regulating all traffic traveling east bound and west bound on Washington Boulevard at the eastern and western intersections of Whittier Street and Washington Boulevard		(not codified)
71312	2-16-2021	Grants—The Board of Aldermen authorizes the receipt of and appropriates funds appropriated by the United States Congress to the Department of the Treasury under the House Bill 133 for emergency rental and housing assistance payments by local governments, for emergency health purposes under the US Department of Health and Human Services grant programs, and for the Low-Income Household Drinking Water and Wastewater Emergency Assistance Program		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71313	2-23-2021	Zoning—Pertaining to the Oscar Waring House, located at 1211 Tower Grove Ave. (the Property), having as subject matter the designation of the Property as a City Landmark		(not codified)
71314	2-23-2021	Zoning—Approving a Redevelopment Plan dated 11/17/20 for the Penrose/North Grand/Kossuth/Fair Area, after finding that the Area is blighted		(not codified)
71315	2-23-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in Virginia from Chouteau northwardly ~584.425 ft. to a point, said point being vacated Gratiot in the City, as hereinafter described, … and imposing certain conditions on such vacation		(not codified)
71316	2-23-2021	Zoning—Approving a Redevelopment Plan dated 10/27/20 for the 2800 South Jefferson Ave. Area after finding that the Area is blighted		(not codified)
71317	2-23-2021	Zoning—Approving a Redevelopment Plan dated 12/15/20 for the 300-338 North 4th St. Area after finding that the Area is blighted		(not codified)
71318	2-23-2021	Zoning—Approving a Redevelopment Plan dated 12/15/20 for the 1014 Spruce St. Area after finding that the Area is blighted		(not codified)
71319	2-23-2021	Zoning—Approving a Redevelopment Plan dated 12/15/20 for the 4100-4122 West Florissant Ave. & 4569 Alice Ave. Area after finding that the Area is blighted		(not codified)
71320	2-23-2021	Zoning—Approving a Redevelopment Plan dated 11/17/20 for the 5025 Delmar Blvd. Area after finding that the Area is blighted		(not codified)
71321	2-23-2021	Zoning—Amending the Redevelopment Plan for the Arkansas/Chippewa/Marine Redevelopment Area approved by Ordinance 64019 … by extending the implementation schedule now calling for projects to be completed by 05/01/29		(not codified)
71322	2-23-2021	Zoning—Approving a Redevelopment Plan dated 10/22/19 for the 2025 Agnes St. Area after finding that the Area is blighted		(not codified)
71323	2-23-2021	Zoning- Approving a Redevelopment Plan dated 12/15/20 for the 1801 Washington Ave. Area after finding that the Area is blighted		(not codified)
71324	2-23-2021	Food Service—Relating to food preparation and handling; adopting Chapters 1 to 7 of the National Food Code, 2017 Edition, and future editions, as Part One of the St. Louis Food Code; adopting additional provisions pertaining to Mobile Food Service, Temporary Food Service, and Compliance and Enforcement as Part Two (Chapters 8, 9, and 10) of the St. Louis Food Code; repealing Ordinance 68597; repealing Ordinance 71106 pertaining to temporary food permits; and adopting in lieu thereof a new St. Louis Food Code, to be codified in the Revised Code of the City of St. Louis, Chapter 11.42	1 Rpld	11.42.010—11.42.234
			2 Added	11.42.010
			3 Added	11.42.020—11.42.150
			4, 5 Added	11.42.160, 11.42.170
71325	2-23-2021	Zoning—Approving a blighting study and Redevelopment Plan for the N. Newstead Ave./Cottage Ave./Whittier St./Page Blvd. Redevelopment Area after finding that the Area is blighted		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71326	2-23-2021	Redevelopment Plan—Designating a portion of the City as a redevelopment area known as the Kingsway Commercial Redevelopment Area pursuant to the Real Property Tax Increment Allocation Redevelopment Act; adopting and approving a redevelopment plan, adopting and approving a redevelopment project with respect thereto; adopting tax increment financing therein; making findings with respect thereto; establishing the Kingsway Commercial TIF Special Allocation Fund; and authorizing certain actions by City Officials		(not codified)
71327	2-23-2021	Agreement—Authorizing the execution of a redevelopment agreement between the City and Kingsway Development, LLC and a financing agreement between the City and the Industrial Development Authority of the City, prescribing the form and details of said agreements; and authorizing other related actions in connection with such agreements		(not codified)
71328	2-23-2021	Zoning—Approving a blighting study and Redevelopment Plan for the 2000-2020 North Broadway & 2001 North 2nd St. Redevelopment Area after finding that the Area is blighted		(not codified)
71329	2-23-2021	Zoning—Approving a blighting study and Redevelopment Plan for the Riverview Blvd./West Florissant Ave./Lillian Ave./Alcott Ave. Redevelopment Area after finding that the Area is blighted		(not codified)
71330	2-23-2021	Zoning—Approving a blighting study and Redevelopment Plan for the 1319 & 1321 Benton St. & 2500 N. 14th St. Redevelopment Area after finding that the Area is blighted		(not codified)
71331	2-23-2021	Zoning—Approving a Redevelopment Plan dated 11/17/20 for the Natural Bridge/North Grand/St. Louis/Vandeventer Area after finding that the Area is blighted		(not codified)
71332	4-19-2021	Air Pollution—Regulating and controlling of air pollution within the City of St. Louis	Rpld	11.34.010—11.34.060, 11.34.080—11.34.130, 11.34.150, 11.34.200—11.34.220, 11.34.240—11.34.260
			2—18 Added	14.34.010—14.34.170
			20 Added	14.34.180
71333	4-19-2021	Small Wireless Facilities—Require certification of network need or proof of other legal exceptions in applications for installations of small wireless facilities on new or modified utility poles in the right-of-way adjacent to the front lot line of single-family lots	1	23.59.040
71334	4-19-2021	3rd Ward Residential Speed Limit District—Establishing a maximum posted speed limit of twenty (20) miles per hour for all traffic travelling upon sections of roadways in areas zoned A Single Family Residential District, B Two Family Residential Dwelling District, C Multiple Family Residential Dwelling District, D Multiple Family Residential Dwelling District, and E Multiple Family Dwelling District that are within the area defined herein as the 3rd Ward Residential Speed Limit District	1 Added	17.190.010

Ordinance Number	Date	Description	Section	Section this Code
71341	5- 7-2021	Landmark—Designating the Central Baptist Church located at 2842 Washington Boulevard as a City of St. Louis Landmark, containing definitions, Landmark Standards and a severability clause		(not codified)
71342	5- 7-2021	Lease—Authorizing a new lease agreement with the City of St. Louis and SCF Lewis and Clark Terminals, LLC for temporary parking and storage and for interior receiving, processing, storing and transloading of cargo and/or as a warehouse center for products at #5 Clinton Street including land and the warehouse and other improvements for 2 years and 7 months with mutual options of 7 years and two additional 5 years		(not codified)
71343	5- 7-2021	Employment and Housing—Prohibiting discrimination in employment and housing decisions including, without limitation hiring, advancement and compensation and discrimination in housing practices based upon an individual's hairstyle, protective hair, or natural or cultural hair texture or style. Provides a process for aggrieved persons to bring claims and have them investigated	1—3 Added	15.21.010—15.21.030
71344	5- 7-2021	Employment and Housing—Amending Ordinance 67119 to prohibit employers and labor organizations from advertising that individuals of a certain age, race, creed, color, sexual orientation, gender identity, national origin, religion or disability are not accepted for employment or membership; and to prohibit landlords from declining rental applicants because they are victims of domestic, dating, or sexual violence, or stalking or construing such violence as a violation or cause for termination of a lease; and to allow landlords to bifurcate leases to remove offenders and allow victims to remain	2, 3	3.44.080(B), (C)
71345	8- 4-2021	Budget—The City's Annual Budget Appropriation for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022, amounting to $1,153,649,859, which sum is appropriated from Revenue and Special Funds named for the purposes enumerated herein		(not codified)
71346	6- 8-2021	Licensing—Prohibiting the issuance of any package liquor licenses for any currently non-licensed premises within the boundaries of the Fourteenth Ward Liquor Control District, as established herein, for a period of three years from the effective date hereof; containing an exception allowing, during the moratorium period for the transfer and renewal of existing licenses, under certain circumstances, and the issuance of a drink license at previously non-licensed premises		(not codified)
71347	6- 8-2021	Grants—Authorizing the receipt of and appropriating funds granted through the United States Department of Health and Human Services for Emergency Medical Services		(not codified)
71348	6-28-2021	Funds Transfer—Authorizing the transfer of $13,727,769 from the Airport Debt Service Stabilization Fund to the Airport Revenue Fund during the fiscal year beginning July 1, 2020, to be used to mitigate rates on an annual basis for five years during the term of the Airport Use and Lease Agreement, which commenced on July 1, 2016		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71349	6-30-2021	Grants—Authorizing and directing the Circuit Attorney, on behalf of the City of St. Louis, to enter into a grant agreement with the USDOJ, Bureau of Justice Assistance, Office of Justice Programs for funding to create The St. Louis Circuit Attorney Navigation, Diversion, and Opportunity (also referred to as STL CAN DO) Program 2019-AR-BX-K018 and authorizing the Circuit Attorney to expend related grant funds necessary to support this effort including hiring staff and program development resources		(not codified)
71350	6-30-2021	Grants—Authorizing Circuit Attorney to enter into a grant agreement with the USDOJ, Bureau of Justice Assistance, Office of Justice Programs to fund Innovative Solutions for Combating Violent Crime (also referred to as Innovative Prosecution) Program 2019-YX-BX-0021; also, to expend related grant funds necessary to support this effort including hiring staff and program development resources		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71351	6-30-2021	Grants—Authorizing the Police Commissioner, on behalf of the City of St. Louis, to enter into and execute a grant agreement with the Missouri Office of Crime Victim Services to fund the Protection Program for Witnesses of Violence grant program, appropriating funds therefor, and authorizing the Police Commissioner or his designees to enter into contracts and expend the funds to the extent received		(not codified)
71352	6-30-2021	Grants—Authorizing the department of Health to accept Centers for Disease Control and Prevention Foundation award (CDC-RFA-OT18-1802) funding of $2,800.00 through a contract with the National Environmental Health Association as part of an Explorer Contract Grant to reimburse DOH during the period of April 1, 2021 through July 31, 2021 for the purpose of supporting food safety program activities, designed to explore involvement in CDC's National Environmental Assessment Reporting System; appropriating the CDC NEARS grant funds to DOH; authorizing the expenditure of CDC NEARS grant funds for grant purposes and to fulfill the obligations of said grant		(not codified)
71353	6-30-2021	Appropriations—Making appropriation for payment of the operating expenses, capital expenses, including lease purchase agreements involving Parking Division assets, and debt service expenses of the Parking Division of the Treasurer's Office for the fiscal year July 1, 2021 through June 30, 2022, in the sum of $17,073,082.00 including $1,367,290.00 for capital improvements		(not codified)
71354	7- 7-2021	Grants—Authorizing the City of St. Louis Department of Health to accept a grant from the Substance Abuse and Mental Health Services Administration, known as the Law Enforcement and Behavioral Health Partnership: STL CARES project grant in the amount of $1,648,627.00 over five years, to enable early diversion of individuals with serious mental illness and co-occurring disorders from potential arrest using targeted outreach and behavioral health co-response, coupled with law enforcement personnel training in mental health and trauma-informed response; authorizing the expenditure of grant funds by entering into contracts or otherwise for the grant purposes		(not codified)
71355	7- 7-2021	Grants—Authorizing the Department of Health to accept COVID-19 response grant assistance through the Epidemiology and Laboratory Capacity CARES award of up to $71,150.00 from the Missouri Department of Health and Senior Services for the grant purposes of providing funding assistance with local efforts for COVID-19 related case investigation, contact tracing response, and reporting activities; and to accept the 2020 Medical Reserve Corps COVID-19 Operational Readiness Award of $5,000.00 from the National Association of County and City Health Officials for the grant purposes of providing funding assistance for approved activities that build operation readiness capabilities to meet the COVID-19 emergency preparedness and response; authorizing the expenditure of MDHSS-ELC and NACCHO-ORA grant funds for grant purposes and to fulfill the obligations of said grants		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71356	7- 7-2021	Zoning—Changing the zoning of property as indicated on the District Map, from the "G" Local Commercial and Office District to the "H" Area Commercial District, in City Block 4575 (4700-04, 4710-14, 4718-20, 4722, 4724-30, 4732-36, 4738, 4740, and 4800 Delmar Boulevard), so as to include the described parcels of land in City Block 4575		(not codified)
71357	7- 2-2021	Parking—Establishing the "5700 Walsh Street Parking District" and location and restrictions for curb parking within the 5700 Walsh Street Residential Parking District; authorizing the placement of Permit Parking Only signs and prohibiting the parking of any vehicle which does not display the required permit; providing a fine of $20.00 for violations	1—6 Added	17.175.010—17.175.060
71358	7- 2-2021	Traffic—Establishing two, two-way stop sites at the intersection of Clarendon Ave and Vernon Ave regulating all traffic traveling northbound and southbound on Clarendon Ave		(not codified)
71359	7- 2-2021	Appropriations—Pertaining to the Transit Sales Tax imposed pursuant to Section 94.660, RSMo., appropriating $10,523,000 from the "City Public Transit Sales Tax Trust Fun—Account ONE" for the period herein stated to the Bi-State Development Agency for certain purposes; providing for the payment of such funds during the period July 1, 2021 through June 30, 2022; further providing that in no event shall the Comptroller draw warrants on the Treasurer for an amount greater than the amounts of the proceeds deposited in the "City Public Transit Sales tax Trust Fund" during the period of July 1, 2021 through June 30, 2022		(not codified)
71360	7- 2-2021	Appropriations—Appropriating the sum of $20,110,000 as described in Section 94.600 through 94.655, RSMo. 2000, as amended for the period herein stated, which sum is hereby appropriated out of the "Transportation Trust Fund" to the Bi-State Development Agency for transportation purposes; and further providing that the appropriation is conditional upon the Bi-State Development Agency supplying the Board of Estimate and Apportionment an annual evaluation report; further providing that in no event shall the Comptroller draw warrants on the Treasurer for an amount greater than the amount of proceeds deposited in the "Transportation Trust Fund" during the period from July 1, 2021 through June 30, 2022; providing for the appropriation to be reduced if certain funds are used for other than public transit purposes; further providing that the appropriation is conditional upon Bi-State requiring the payment of prevailing wages and benefits to employees of outside service contractors		(not codified)
71361	7- 2-2021	Appropriations—Pertaining to the Transit Sales Tax imposed pursuant to Section 64.660, RSMo., appropriating $10,523,000 from the "City Public Transit Sales Tax Trust Fund—Account TWO" for the period herein stated to the Bi-State Development Agency for certain purposes; providing for the payment of such funds during the period July 1, 2021 through June 30, 2022; further providing that in no event shall the Comptroller draw warrant on the Treasurer for an amount greater than the amounts of the proceeds deposited in the "City Public Transit Sales Tax Trust Fund" during the period July 1, 2021 through June 30, 2022		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71362	7- 7-2021	Zoning—Approving a redevelopment plan dated January 26, 2021 for the 1558 South Vandeventer Ave. area after finding that the area is blighted; allowing a 5-year tax abatement at 75%		(not codified)
71363	7- 7-2021	Zoning—Approving a blighting study and Redevelopment Plan for the 3810 Watson Rd. Redevelopment Area after finding that the area is blighted; allowing a 5-year tax abatement at 50%		(not codified)
71364	7- 7-2021	Zoning—Approving a blighting study and Redevelopment Plan for the 5256 Vernon Ave. Redevelopment Area after finding that the area is blighted; allowing a 10-year tax abatement at 95%		(not codified)
71365	7-15-2021	Streets—Authorizing and directing the Director of Streets to permanently close, barricade or otherwise impede the flow of traffic on the block of Virginia Ave. by blocking said traffic flow at the intersection of the block of Virginia Ave. and Bellerive Blvd		(not codified)
71366	7-15-2021	Policy—Repealing Ordinance 71025 concerning establishing a policy for the disclosure of potential conflicts of interest and substantial personal interests, and the reporting of certain personal financial interests as required under Section 105.483(11) Revised Statutes of Missouri, and in lieu thereof enacting a new ordinance reestablishing and affirming said policies as required under Section 105.483(11)		(not codified)
71367	7-15-2021	Zoning/Development Establishing and creating a Planned Unit Development District for City Blocks 1868.00, 1880.00, & 1881.00 to be known as the "Veterans Community Project Planned Unit Development District"		(not codified)
71368	7-15-2021	Grant—Authorizing the Director of the Department of Human Services, on behalf of the City of St. Louis, to accept a Grant Award from FORTH, in the amount of $60,000.00 for the purposes of funding transportation services to two senior centers to provide home delivered meals for senior citizens in the City of St. Louis utilizing Electric Vehicles , which will be provided by FORTH through 2023, and funding DHS/SLAAA to enter into contracts and to expend those funds, to the extent received		(not codified)
71369	7-15-2021	Streets Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in 1) Prescott from East Clarence and East Athlone; 2) East Holly from Bulwer to Prescott; 3) the 20 foot wide "L" shaped alley in City Block 3447 as bounded by East Clarence, Bulwer, East Holly, and Prescott; 4) the 20 foot wide east/west alley in City Block 3444 as bounded by East Holly, Bulwer, East Athlone and Prescott		(not codified)
71370	7-15-2021	Streets—Permanently closing, barricading, or otherwise impeding the flow of traffic at Lexington at the eastern curb line of Kingshighway Memorial Blvd		(not codified)
71371	7-15-2021	Streets—Repealing Ordinance 68455, authorizing the Director of Streets to open the permanently closed San Francisco Ave. 387 feet of the eastern curb line of Kingshighway Memorial Blvd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71372	7-15-2021	Streets—Permanently closing, barricading, or otherwise impeding the flow of traffic on 1) Ashland Ave. at the western curb line of Marcus; 2) Sullivan Ave. at the eastern curb line of Grand Blvd.; 3) North 23rd St. at the eastern curb line of Angelica; and 4) Thomas St. at the eastern curb line of North Garrison		(not codified)
71373	7-15-2021	Streets—Permanently closing, barricading, or otherwise impeding the flow of traffic at Greer Ave. 375 feet east of the east curb line of Union Blvd		(not codified)
71374	7-21-2021	Agreement—Authorizing and directing the Director of Airports and the Comptroller to enter into and execute on behalf of the City of St. Louis Lambert International Airport Lease Agreement No. AL-217, between the City and Southwest Airlines Company, granting to the Lessee, subject to and in accordance with the terms, covenants, and conditions of the Lease Agreement, certain rights and privileges in connection with the occupancy and use of the Premises		(not codified)
71375	7-30-2021	Redevelopment—Approving the City Foundry Tax Increment Financing (TIF) Second Amended RPA 2 Redevelopment Plan and the revision to the redevelopment project for Redevelopment Project Area 2 described therein		(not codified)
71376	7-30-2021	Redevelopment/Agreements—Authorizing the execution of an amended and restated redevelopment agreement between the City and FOPA Partners, LLC and a financing agreement between the City and the Industrial Development Authority of the City, prescribing the form and details of said agreements		(not codified)
71377	7-30-2021	Bonds—Authorizing the City to issues its Tax Industrial Development Revenue Bonds (Vande East Partners, LLC Project), Series 2021, in a principal amount of not to exceed $125,000,000 for the purpose of providing funds to pay the costs of purchasing and constructing an industrial development project in the City; approving a plan for such project; authorizing and directing the Mayor and the Comptroller to execute certain documents related thereto; and authorizing and directing the taking of other actions and approval and execution of other documents as are necessary or desirable to carry out and comply with the intent thereof		(not codified)
71378	8- 2-2021	Zoning—Approving a blighting study and Redevelopment Plan for the 1428 Warren St. and 2514 Blair Ave. Redevelopment Area after finding that the Area is blighted		(not codified)
71379	8- 2-2021	Zoning—Approving a Redevelopment Plan dated 05/25/21 for the 3834 Virginia Ave. Area after finding that the Area is blighted		(not codified)
71380	8- 2-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in the westernmost 170.44' 0.80' of the 20-foot-wide east/west alley in City Block 4233 as bounded by Fordey, Thatcher, East Railroad, and Antelope in the City		(not codified)
71381	8- 2-2021	Streets—Conditionally vacating above-surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel n 9th St. between Cole St. and Dr. Martin Luther King Dr. in the City		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71382	8- 2-2021	Zoning—Approving a Redevelopment Plan dated 05/25/21 for the 3813-3853 Garfield Ave. Area after finding that the Area is blighted		(not codified)
71383	8- 2-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in the remaining 169 feet of the 15-foot-wide east/west alley in City Block 901 beginning at 19th St. and continuing westwardly to its terminus and bounded by Olive St., 19th St., Pine St., and 20th St. in the City		(not codified)
71384	8- 5-2021	Agreement—Amending Ordinance 66935, which relates to an original Lease Agreement dated 01/01/06, as extended in 2010 and 2015 between the City and Material Sales Company, Inc., authorizing the execution of a First Amendment to Lease Agreement between the City and Lessee for a period of five (5) years with one more five (5) year mutual option for certain land and mooring rights at or near the north side of MacArthur Bridge and a point Three Hundred feed (300') south of the Poplar Street Bridge for $21.70 per linear foot for 2021 and increasing each year thereafter as set forth in the First Amendment		(not codified)
71385	8- 5-2021	Agreement—Amending Ordinance 68872, which relates to an original Lease Agreement dated 04/01/11, to be extended in the first mutual option between the City and Kiesel Company, authorizing the execution of a First Amendment to Lease Agreement between the City and Lessee under certain terms and conditions, for a period of five (5) years with two more five (5) year mutual options for certain land and mooring rights at or near Branch St. for $106,271.00 for 2021 and increasing each year thereafter at a rate of 2% as set forth in the said First Amendment		(not codified)
71386	8- 5-2021	Agreement—Authorizing the execution of a new Lease Agreement between the City and Terminal Railroad Association of St. Louis ("TRRA"), for certain land at or near North Market at First Street in the City for a period of five (5) years with four (4) five (5) year mutual options for the purpose of construction, operation and maintenance of TRRA's railroad tracks at an annual base rent $13,344.319 with an adjustment as provided in Ordinance No. 57933 for the first ten (10) years, providing for insurance and environmental conditions and other related terms and conditions		(not codified)
71387	8- 5-2021	Agreement—Authorizing the execution of a new Lease Agreement between the City and Grossman Iron and Steel Company, for certain land at or near 21-99 and 14 North Market at 2226 North First St. in the City for a period of ten (10) years with three (3) five (5) year mutual options for the purpose of providing a turning radius to access Grossman's adjacent facilities parking of Grossman's trucks, vehicles and trailers, and storage at an annual base rent $23,856 with a 2% annual escalator for the first ten (10) years		(not codified)
71388	8- 5-2021	Agreement—Authorizing the execution of a new Lease Agreement between the City and St. Louis Produce Market, for certain land consisting of 45,709 square feet at or near 2901 Hall Street in the City for a period of ten (10) years with three (3) five (5) year mutual options for the purpose of vehicles and trucks of Lessee or Lessee's customers at an annual base rent $11,427.40 with a 2% price escalator after the first ten (10) years		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71389	8- 5-2021	Agreement—Amending Ordinance 68681, which relates to an original Lease Agreement dated 07/20/10, to be extended in the third mutual option between the City and ACBL Transportation Services, LLC (f/k/a ACL Transportation Services LLC), authorizing the execution of a Third Amendment to Lease Agreement between the City and Lessee under certain terms and conditions, for a period of five (5) years for certain mooring rights at or near Holly Avenue for $86,812.50 for the first year and increasing thereafter as set forth in the said Third Amendment		(not codified)
71390	8- 5-2021	Agreement—Amending Ordinance 68964, which relates to an original Lease Agreement dated 09/15/11 between the City and Fred Weber, Inc., authorizing the execution of a First Amendment to Lease Agreement between the City and New Frontier Materials Operations Alpha LLC, under terms and conditions, for a period of five (5) years with two more five (5) year mutual options for certain land and mooring rights for three parcels at or near Rutger St. and Convent St. for $63,421.57 per year with a 2% escalator, increasing each year thereafter as set forth in the said First Amendment		(not codified)
71391	8- 5-2021	Agreement—Amending Ordinance 67298, which ordinance relates to an original Lease Agreement dated 01/01/07 and extended in 2016 between the City and Fred Weber, Inc., authorizing the execution of a First Amendment to Lease Agreement between the City and New Frontier Materials Operations Alpha LLC, under certain terms and conditions, for a period of five (5) years with two more five (5) year mutual options for certain land for four parcels at or near Chouteau Ave. and Convent St. and MacArthur Bridge for $88,183.67 per year with a 2% escalator increasing each year thereafter as set forth in the said First Amendment		(not codified)
71392	8- 5-2021	Agreement—Authorizing the execution of a new Lease Agreement between the City and Centerpoint Terminal Company, for a period of ten (10) years with three (3) five (5) year mutual options for the purpose of mooring only of an area starting at Mullanphy St. for a distance of 196.6 linear feet and starting near Mound St. for 377.2 linear feet (a total of 600 linear feet of river footage) for anchorage and mooring for barges and other vessels		(not codified)
71393	8-16-2021	Grants—Authorizing the Mayor, or her designees, to apply for and accept funds pursuant to Federal appropriations under the American Rescue Plan Act of 2021, Pub. L. No. 117-2, 9901 (03/11/21), directing the Comptroller to establish a new account for the receipt of funds, to the extent received, appropriating the funds, to the extent received		(not codified)
71394	10-13-2021	Streets—An ordinance amending Sections Two and Three of Ordinance Number 70333 related to City of St. Louis' Traffic Calming Policy, and allowing for expedited speed studies for and installation of speed humps and containing an emergency clause	1—3	17.04.100
71395	10-21-2021	Offenses—An ordinance making it unlawful for an individual to tamper with, including lifting door handles or otherwise trying doors and locks of successive vehicles that are not owned by the individual with the intent of gaining entry to steal the vehicle or its contents	1—3 Added	15.83.060

Ordinance Number	Date	Description	Section	Section this Code
71396	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in Essex Place from Marcus Ave. eastward eastwardly approximately 367 feet in the City		(not codified)
71397	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in in the easternmost 8.52 feet of Water St. from East Davis northwardly approx. 143 feet in the City		(not codified)
71398	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in Semple Ave. from Ashland Ave. southwardly 372.995 .005 feet to a point in the City		(not codified)
71399	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in an irregular shaped portion of McKissock beginning approx. 830.5 feet southeast of Humbolt in the City		(not codified)
71400	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in an irregular shaped portion of 12th St. considered as excess right-of-way adjacent to 1204-06 Lynch in the City		(not codified)
71401	10-27-2021	Streets—Conditionally vacating above surface, surface, and sub-surface rights for vehicle, equestrian, and pedestrian travel in First St. from Angelica St. southwardly approx. 458.305 5.635 feet to its terminus in the City		(not codified)
71402	10-27-2021	Streets—Authorizing the honorary street name Michael P. McMillan Way pursuant to Ordinance 68937, which shall begin at the intersection of Aubert Ave. and Page Blvd. and run north on Aubert Ave. to the intersection of Aubert Ave. and Dr. Martin Luther King Jr. Dr		(not codified)
71403	10-27-2021	Streets—Authorizing the honorary street name Captain David Dorn Way pursuant to Ordinance 68937, which shall begin at the intersection of Dr. Martin Luther King Jr. Dr. and Sarah St. and run north on Dr. Martin Luther King Dr. to the intersection of Whittier St. and Dr. Martin Luther King Dr		(not codified)
71404	10-27-2021	Streets—Authorizing the honorary street name Wm. Lacy Clay Blvd. pursuant to Ordinance 68937, which shall begin at the intersection of Natural Bridge Ave. and Fair Ave. and run west on Natural Bridge Ave. to the intersection of Natural Bridge Ave. and N. Newstead Ave		(not codified)
71405	10-27-2021	Streets—Establishing a two-way stop site at the intersection of Bates St. and Leona St. regulating all traffic traveling west bound and east bound on Bates St. at the intersection of Bates St. and Leona St		(not codified)
71406	11- 1-2021	Streets—Directing the Director of Streets to permanently close barricade or otherwise impede the flow of traffic at Theodosia Ave. 75 feet east of the east curb line of Union Blvd		(not codified)
71407	11- 1-2021	Streets—Directing the Director of Streets to permanently close barricade or otherwise impeded the flow of traffic at Paulian Place at the east curb line of Union Blvd		(not codified)

Ordinance Number	Date	Description	Section	Section this Code
71408	11- 1-2021	Streets—Directing the Director of Streets to permanently close barricade or otherwise impede the flow of traffic at Cote Brilliante Ave. 75 feet east of the east curb line of Union Blvd		(not codified)
71409	11- 1-2021	Grants—Submitting a 2022 Annual Action Plan to the US Department of Housing and Urban Development ("HUD") as required to apply for funding under the Community Development Block Grant ("CDBG") HOME Investment Partnership ("HOME"), Emergency Solutions Grant ("ESG") aand Housing Opportunities for Persons with AIDS ("HOPWA") Entitlement Programs, authorizing and directing the Mayor and the Comptroller on behalf of the City to enter into and execute agreements with HUD for the receipt of 2022 CDBG, HOME, ESG, and HOPWA funds		(not codified)
71410		No information		
71411	11-12-2021	Zoning—Amending Section 24 of Ordinance No. 59979, codified in Chapter 26.92 of the Revised Code of the City of St. Louis, relating to public notice of hearings by Planning Commission on making a change in the boundary of a zoning district map; requiring the Planning Commission to publish notice of such hearings as provided herein	1	26.92.020—26.92.040
71412	11-12-2021	Zoning—Amending Ordinance No. 64195, codified in Section 26.84.50 of the Revised Code of the City of St. Louis, relating to the Board of Adjustment; requiring consideration of variance to be in keeping with the City's adopted Comprehensive Plan	1	26.84.050.D
71413	11-12-2021	Zoning—Amending Ordinance No. 64687, codified in Chapter 3.48 of the Revised Code of the City of St. Louis relating to the Planning Commission; amending Section 3.48.070, Subsection D, specifying the vote required by the Board of Aldermen to override a negative recommendation of the Planning Commission for a zoning change	1	3.48.070
71429	12-13-2021	Marijuana—Pertaining to the possession of marijuana and paraphernalia, and updating local enforcement priorities, probable cause and reasonable suspicion standards, and disciplinary standards to harmonize city policy with Article XIV of the Missouri State Constitution	2 Rpld	11.60.300—11.60.330, 11.61.010—11.61.040
			1, 3—5Added	11.61.010—11.61.040
71430	12-20-2021	Detention Facility Oversight Board—Establishing a Detention Facility Oversight Board comprising nine City residents to serve as an advisory body to the Mayor, Commissioner of Corrections and the Director of Public Safety with regard to detention facility operations, conditions of detention, and Division of Corrections policies, that is authorized to receive and investigate complaints of alleged corrections misconduct and detention incidents and make findings and recommendations based thereon, including recommendations regarding Division of Correction's policy and procedures, employee professional development, and employee disciplinary action.	1—10 Added	3.150.010—3.150.100
71443	12-27-2001	Ward Boundaries—Establishing new ward boundaries	1, 2	2.12.010
71478	3-30-2022	Charter—Amending first sentence of Art. IV, § 24, to increase the maximum fine assessed for violations of ordinances regarding the preservation of environmental conditions in the City	1	Charter, Art. IV, § 24

Ordinance Number	Date	Description	Section	Section this Code
71479	3-30-2022	Board of Election Commissioners—Relating to the appointment of and salaries of certain employees of the St. Louis Board of Election Commissioners (the "Election Board") pursuant to RSMo 115.045 and 115.049; allocating certain other employees to a grade with rate	1—6 Added	4.68.010—4.68.060
71485	3-30-2022	All-Terrain Vehicles—Unlawful for an individual to operate an "all-terrain vehicle" on any public right-od-way or public property in the City	1—5 Added	17.195.010—17.195.050
71487	3-30-2022	Vehicle Exhaust Systems—Specifically prohibiting straight pipe exhaust systems	1	17.32.050
71490	3-30-2022	Healthy Drink Options—Requiring food establishments, as defined in Chapter 11.42.040 of the Revised Code of the City of St. Louis, to make water, low-fat milk and 100% fruit juice the default beverage options offered with food establishment children's meals.	1—3 Added	11.42.180
71491	3-30-2022	The Reparations Fund and The Midwest Land Development Fund—Authorizing the Comptroller to establish "The Reparations Fund" to help provide needed support and financial assistance to the spouses and children of all African American local residents as of the effective date of this ordinance; and to establish "The Midwest Land Development fund" to help provide additional dollars for economic development at approved local city blocks	1—4 Added	5.100.010—5.100.040
71502	5- 4-2022	Third Ward Residential Parking District—Establishing the Third Ward Residential Parking District" and location and restrictions for curb parking within the Third Ward Residential Parking District; and authorizing the placement of Permit Parking Only signs and prohibiting the parking of any vehicle in the District that does not display the required permit; and providing a penalty for violations	1—8 Added	17.200.010—17.200.080
71508	6-16-2022	Collector of Revenue's Office—Relating to the appointment of and salaries of certain employees in the Collector of Revenue's Office pursuant to RSMo 82.610; allocating certain other employees to a grade with rate	2—8	4.44.010—4.44.070
71509	6-16-2022	Sheriff's Office—Employees	2	4.36.010
			3 Added	4.36.015
			4—16	4.36.020—4.36.140
71510	6-16-2022	Medical Examiner's Office—Regulating employer and employee working relationships between the City of St. Louis and all employees under the Medical Examiner's Office, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; allocating certain other employees to a grade with rate	1—28 Rpld	4.54.010—4.54.280
			Added	4.54.010—4.54.280
71511	6-16-2022	Recorder's Office—Relating to the appointment of and salaries of certain employees in the Recorders' Office pursuant to RSMo 82.610; allocating certain other employees to a grade with rate	2—7	4.34.010—4.34.060

Ordinance Number	Date	Description	Section	Section this Code
71512	6-16-2022	Personnel—Regulating employer and employee working relationships between the City and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; allocating certain other employees to a grade with rate	1—27	4.10.010—4.10.270
71513	6-16-2022	Board of Election Commissioners—Relating to the appointment of and salaries of certain employees of the St. Louis Board of Election Commissioners (the "Election Board") pursuant to RSMo 115.045 and 115.049, by repealing Ordinance Number 71479; allocating certain other employees to a grade with rate	2—7	4.68.010—4.68.060
71514	6-16-2022	License Collector—Relating to the appointment and rates of compensation of certain employees of the License Collector of the City	2—13	4.28.010—4.28.120
71524	6-27-2022	Youth Council—Establishes Youth Council to advise the Board of Aldermen and the Mayor on issues relating to youth and children.	1—6 Added	3.155.010—3.155.060
71531	7- 6-2022	Airport Concessions—Pertaining to the process through which the City Airport Authority lets concessions contracts at St. Louis Lambert International Airport	1	18.08.080
71550	7-18-2022	Treasurer's Office—Relating to the position classifications and salaries of the employees in the Treasurer's Office	2	4.26.015
			3—6	4.26.020—4.26.023
			7—9	4.26.040—4.26.060
71551	7-18-2022	Parking Division—Relating to the position classifications and salaries of the employees in the Parking Division	2—9	4.30.010—4.30.024
71552	7-18-2022	License Collector—Relating to the appointment and rates of compensation of certain employees of the License Collector of the City	2—13	4.28.010—4.28.120
71556	8- 3-2022	Civilian Oversight Board—Authorizes independent investigations of law enforcement misconduct and use of force incidents. Reconstitutes and provides staff support for the Civilian Oversight Board (COB) and provides coordination and staff support for the Detention Facility Oversight Board (DFOB). Also establishes the Division of Civilian Oversight within the Department of Public Safety and authorizes the establishment of the Public Integrity Unit, directed by the City Circuit Attorney.	2 Rpld	3.140.010—3.140.080
			1, 3—11 Added	3.140.010—3.140.100
71562	10-26-2022	Gibson and S. Taylor Avenues Residential Parking District—Repealing the 4400 Gibson Residential Parking District, and the 1100 Taylor Avenue Residential Parking District, and establishing a new district, the "Gibson and S. Taylor Avenues Residential Parking District"	1 Rpld	17.135.010—17.135.050
			2—6 Added	17.135.010—17.135.050
71574	11- 4-2022	Increases penalties for violations of various sections	1	11.70.150
			2 Rpld	11.02.375
			3	11.02.370
			4	15.80.020
71575	11- 4-2022	Yard Waste—Concerning disposing of yard waste in a City-owned yard waste container by a private lawn service	1	11.85.020

Ordinance Number	Date	Description	Section	Section this Code
71607	1-23-2023	Charter—Establishing Charter Commission to consider and recommend amendments and revisions to the voters on a decennial basis following the census or upon initiative by the qualified voters of the City	1 Added	Charter Art. 5, § 7
71608	1-23-2023	Marijuana—Imposing an additional sales tax for three (3) percent on the retail sales of adult use non-medical marijuana med in the City of St. Louis, as authorized by Amendment Three of the Missouri Constitution		Ch. 26.70 (note)
71614	1-27-2023	Drive through traffic—Prohibiting the use of alleys by operators of motor vehicles for drive through traffic in Kingsway East, Kingsway West, Penrose, and Mark Twain Neighborhoods	1—4 Added	17.205.010—17.205.040
71615	1-27-2023	Amending Sections 3.06.090 and 5.19.020 of the Revised Code of the City of St. Louis, relating to compensation for the Board of Aldermen and Aldermanic Expenses, respectively, and requiring Aldermen to dedicate themselves to the official duties and obligations of their office on average 32 hours per week for each year they are in office and providing that Aldermen may engage in employment in addition to their work for the City of St. Louis and its residents provided that such additional employment does not interfere with their primary responsibility to the City of St. Louis and its residents to satisfactorily carry out their duties and obligations as Aldermen	2 4	3.06.090 5.19.020
71617	1-27-2023	Prohibited parking—Prohibiting parking and/or standing on the west side of N. Euclid between St. Louis Avenue and Ashland and the east side of N. Euclid between Ashland and Natural Bridge	1 Added	17.207.010
71618	1-27-2023	Traffic on Kingshighway Memorial Boulevard—Pertaining to commercial semi-trailer trucks, also known as semis, or tractor-trailers trucks, prohibiting such traffic during certain hours on Kingshighway Memorial Boulevard from the north boundary of Lexington Avenue to south boundary of Dr. Martin Luther King, exempting from said prohibition emergency vehicles, including privately-owned tow trucks when providing emergency service to non-commercial vehicles, and vehicles with a gross vehicle weight (GVW) of less than 26,000 pounds	1, 2 Added	17.210.010
71619	1-27-2023	Parking on Kingshighway Memorial Boulevard—Prohibiting parking of commercial semi-trailer trucks, cabs for semi-trailer trucks, or the cargo or flat bed parts of semi-tractor trucks, also known as semis, or tractor-trailer trucks, on Kingshighway Memorial Boulevard or on parking lots and or property abutting Kingshighway Memorial Boulevard from the north boundary of West Florissant Boulevard to the south boundary of Dr. Martin Luther King, exempting from said prohibition emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles	1, 2 Added	17.210.020
71620	2-16-2023	Development proposals—Policies and procedures in connection with the consideration of development proposals	1—3 Added	3.160.010—3.160.030
71633	2-16-2023	Marijuana—Providing for the lawful sale of marijuana to adults subject to the conditions in the Missouri Constitution	1 2	26.08.321 26.70.010—26.70.040

Ordinance Number	Date	Description	Section		Section this Code
71644	2-20-2023	Uniform Plumbing Code—Adopting the Uniform Plumbing Code, 2021 Edition in full except as it conflicts with the changes thereto contained herein, as the Plumbing Code of the City of Saint Louis; repealing Ord. No. 69255	1	Rpld	25.04.010—25.04.310
			2—4	Added	25.04.010—25.04.030
71646	2-21-2023	Lead poisoning—Repealing and reenacting the Lead Poisoning Control Law		Rpld	11.22.010—11.22.210
				Added	11.22.010—11.22.320
71647	2-24-2023	Civilian Oversight Board—Providing for independent investigations of law enforcement misconduct and use of force incidents, and repealing Ordinance Number 71556 and enacting in lieu thereof a new ordinance that reconstitutes and provides staff support for the Civilian Oversight Board (COB) and provides coordination and staff support for the Detention Facility Oversight Board (DFOB) created under Ordinance Number 71430, and establishing the Division of Civilian Oversight within the Department of Public Safety, and authorizes the establishment of the Public Integrity Unit, directed by the Circuit Attorney in the City of St. Louis	1	Rpld	3.140.010—3.140.100
			2—12	Added	3.140.010—3.140.110
71653	3- 1-2023	Repeal provisions which pertain to election of members of Board of Aldermen and their terms of office	1	Rpld	3.06.010
71668	6-21-2023	Commercial vehicle traffic along Meramec Street	1—4	Added	17.215.010—17.215.040
71683	6-26-2023	Water rates	2	Rpld	23.04.220, 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.015, 23.20.020, 23.20.030, 23.20.040
			3	Added	23.16.025, 23.18.15, 23.20.015
			4	Added	23.16.040
			5	Added	23.18.070
			6—8	Added	23.20.020—23.20.040
			9	Added	23.16.020
			10	Added	23.16.130
			11	Added	23.04.220
71685	6-28-2023	Personnel—Relating to the appointment of and salaries of certain employees in the Collector of Revenue's Office	2—8		4.44.010—4.44.070
71686	6-28-2023	Personnel—Regulating employer and employee working relationships between the City and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a deferred compensation plan	1—27		4.10.010—4.10.270
			31	Added	4.10.280
71687	7-10-2023	Personnel—Relating to the appointment of and salaries of certain employees in the Recorders' Office	2—7		4.34.010—4.34.060

Ordinance Number	Date	Description	Section	Section this Code
71688	7-10-2023	Personnel—Relating to the appointment and rates of compensation of certain employees of the License Collector of the City	2—13	4.28.010—4.28.120
71689	7-10-2023	Personnel—Relating to the position classifications and salaries of the employees in the Parking Division	2—9	4.30.010—4.30.024
71690	7-10-2023	Personnel—Relating to the position classifications and salaries of the employees in the Treasurer's Office	2	4.26.015
			3—6	4.26.020—4.26.023
			7—9	4.26.040—4.26.060
71691	7-10-2023	Personnel—Relating to the appointment of and salaries of certain employees in the Sheriff's office	1, 2	4.36.010, 4.36.015
			3—15	4.36.020—4.36.140
71693	7-10-2023	Regulating employer and employee working relationships between the City and all employees under the Circuit Attorney Office. This includes a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan	2—7	4.48.010—4.48.060
71694	7-12-2023	Establishing a program providing access to legal representation for tenants facing eviction or equivalent proceedings	1—7 Added	11.106.010—11.106.070
71702	7-12-2023	Personnel—Relating to the appointment of and salaries of certain employees of the St. Louis Board of Election Commissioners	2—7	4.68.010—4.68.060
71710	7-31-2023	Requiring the municipal court to assess a $7.00 surcharge for state court automation in addition to any other court costs assessed by the court in cases in which costs are assessed	1 Added	3.08.394
71714	7-31-2023	Employees Retirement System—Enacting a new provision in order to comply with the federal Setting Every Community Up for Retirement Enhancement Act of 2022 (the "Secure Act 2.0") which changed the age requirement for the "required beginning date" for persons who attain age 70½ after December 31, 2019	1	4.16.060.F
71717	7-24-2023	Firearms—Prohibit persons from openly carrying or displaying any firearm readily capable of lethal use within the City unless the person possesses a valid concealed carry endorsement or permit	1—4 Added	15.137.010—15.137.040
71718	7-31-2023	Requiring officers of the City of St. Louis Metropolitan Police Department to identify themselves as specified therein when requesting that a person voluntarily consent to a search of their person, property, vehicle or home where the Officer has reasonable suspicion or probable cause for the search and the search is not incident to a lawful arrest, if the search is not pursuant to a warrant or another of the several exceptions to warrant requirements under applicable law; and requiring that the officer inform such persons the reasons for the request to consent to a search and that they may refuse to consent to such search or revoke their consent at any time during the search without consequence to them; and requiring that the officer create and maintain a record documenting the person's consent, refusal to consent, or revocation of their consent to a search which shall be publicly available	1—4 Added	15.186.010—15.186.040

Ordinance Number	Date	Description	Section	Section this Code
71729	11- 6-2023	Regulations regarding short-term rentals	1—14 Added	25.57.010—25.57.140
71730	11- 6-2023	Enacting a new Chapter 26.76 on the subject of short-term rental, with definitions and establishing short-term rental as a permitted use in all zones of the City of St. Louis; adding a cross-reference in the definition section for short-term rental related uses	1 Rnbd	26.08.385
			as	26.08.386
			Added	26.08.385
			2, 3 Added	26.76.010, 26.76.020
71736	11-14-2023	An ordinance amending Section 2.08.010, which pertains to the nomination of candidates for the offices of Mayor, Comptroller, President of the Board of Aldermen, and Alderman at primary elections	1	2.08.010
71742	11-14-2023	Amending the 2018 International Building Code by the addition of a new subsection, subsection 119.3.3, to authorize the Building Commissioner to take steps to secure vacant buildings or structures of five hundred thousand (500,000) or more square feet which pose significant, extensive concerns to the health, safety, and wellbeing of the public, to prevent the entry and occupancy of such building or structure, including the use of steel barriers or plates and engaging the services of a security services provider, and the cost of any such measures being paid for by the owner of the building or structure	1	25.01.020
71746	11-20-2023	Regulating employer and employee working relationships between the City of St. Louis and all employees under the Medical Examiner's Office, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a deferred compensation plan; repealing Ordinance Number 71510; and allocating certain other employees to a grade with rate	1—28 Rpld	4.54.010—4.54.280
			Added	4.54.010—4.54.280
71749	12- 5-2023	An Ordinance reconstituting and clarifying the roles of the Division of Civilian Oversight and its boards, which include the Civilian Oversight Board (COB) and the Detention Facilities Oversight Board (DFOB); Condensing DFOB Member Orientation and establishing a provision for ongoing training; allowance of independent special legal counsel with certain provisions and to be procured from the Budget of Civilian Oversight; requiring specific entities to appear before the COB or DFOB only when their presence could potentially interfere with criminal or civil proceedings	1 Rpld	3.140.010—3.140.110
				3.150.010—3.150.100
			2—15 Added	3.140.010—3.140.140
71750	12- 5-2023	Prohibiting the open carrying of firearms in the City of St. Louis; exceptions are made for law enforcement officers; and including an effective date clause dependent upon restored authority of the City to regulate firearms	1, 2 Added	15.138.010, 15.138.020
71758	12-18-2023	Pertaining to the creation and administration of a property tax credit for eligible senior taxpayers residing in the City	1—6 Added	5.104.010—5.104.060
71766	12-18-2023	Regulating employer and employee working relationships between the City of St. Louis and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; allocating certain other employees to a grade with rate	1, 2	4.10.020

Ordinance Number	Date	Description	Section	Section this Code
71769	12-26-2023	Establishing requirements pertaining to the retention of employees performing janitorial and security services under contracts for such services with the City and/or City agency, providing for certain exemptions, setting forth consequences for violations, establishing requirements in the event the City and/or City Agency outsources janitorial and security services being performed by employees of the City and/or City agency, establishing policies in the event the City and/or City agency determines to have its employees perform janitorial and security services	1—6 Added	4.70.010—4.70.060
71807	3-13-2024	Amending the Firefighters Retirement Plan ("FRP"), to allow participants who have completed thirty (30) years of service before obtaining the normal retirement age of fifty-five (55) years to receive a normal retirement benefit without having those benefits actuarily reduced due to age; and to also allow grandfathered members with thirty (30) years of service to participate in the DROP benefit without having the contributions actuarially reduced due to age	1	4.19.050.B
			2	4.19.060.D, E
71809	3-13-2024	Amending Chapter 3.160 to include a new subsection, 3.160.030(g), requiring that recipients for development tax incentives to be current in the payment of all City property, earnings taxes, and bills for water and refuse services provided by the City prior to entering into a development or redevelopment agreement with the City	1 Added	3.160.030(g)
71813	3-26-2024	Adding a new Chapter 15.190 to regulate the commercial use of drones and impose community-based safety regulations and restrictions on the operation of drones and other UAs that do not pre-empt federal aviation rules or state law	1 Added	15.190.010—15.190.060
71818	3- 7-2024	Amending various sections so as to permit the Board of Trustees of the Firemen's Retirement System to simultaneously act as the Board of Trustees of the St. Louis Firefighter's Retirement Plan but not until such time as amendments to RSMo §§ 87.140, 87.145, 87.155, 87.260 and 87.350 have become law to permit the Board of Trustees of the Firemen's Retirement System to simultaneously act as the Board of Trustees of the St. Louis Firefighter's Retirement Plan	1 Added	4.18.055.F
			2	4.18.080
			3 Added	4.18.225.D
			4	4.18.315
			5	4.19.120.B
			6, 7	4.19.130.D, G
			8, 9	4.19.140.D, G
			10	4.19.170.A
			11, 12	4.19.070.E—G
			13	4.19.140.E
71820	4-16-2024	Creating the offense of "Unlawful Discharge of a Firearm," when allowed under state law, with penalty provisions	1—4 Added	15.139.010—15.139.040
71821	4-16-2024	Relating to traffic control, establishing the Automated Camera Traffic Enforcement Act, authorizing installation of and contracts relating to one or more automated camera enforcement systems as defined herein, and establishing standards for prosecution of violations of traffic control ordinances detected by automated camera enforcement systems	1 Rpld	17.07.010—17.07.060
			2—12 Added	17.07.010—17.07.110

Ordinance Number	Date	Description	Section	Section this Code
71824	4-17-2024	Providing for the amendment of Chapter 8.37 of the Revised Code in order to extend the opportunity to register domestic partnerships in the domestic partnership registry of the City of St. Louis to employees of the City of St. Louis who do not live within the City, as well as to City residents	1	8.37.020
			2	8.37.030.A
71819	4-16-2024	Pertaining to the excise laws of the City, repealing Title 14 of the Revised Code of the City of St. Louis having as subject matter definitions; establishment of the Excise Division; general regulations; regulations relating to minors; general violations; general licensing; manufacturers, wholesalers, and distributors; retail licenses, nonintoxicating beer licenses, and license transfers; and enacting in lieu thereof a new ordinance pertaining to the same subject matter	2 Rpld	14.01.010—14.01.450
			Added	14.01.010—14.01.480
			3 Rpld	14.02.010—14.02.090
			Added	14.02.010—14.02.100
			4 Rpld	14.03.010—14.03.230
			Added	14.03.010—14.03.230
			5 Rpld	14.04.010—14.04.100
			Added	14.04.010—14.04.100
			6 Rpld	14.05.010—14.05.170
			Added	14.05.010—14.05.170
			7 Rpld	14.06.010—14.06.340
			Added	14.06.010—14.06.340
			8 Rpld	14.07.010—14.07.060
			Added	14.07.010—14.07.060
			9 Rpld	14.08.010—14.08.235
			Added	14.08.010—14.08.235
71829	5- 1-2024	Establishing the Neighborhood Traffic Safety Improvement Fund, and authorizing the appropriation of those funds to be used for certain projects to prevent traffic accidents and fatalities and improve traffic safety citywide, and requiring annual reports developed by the Street Department and presented to the Public Infrastructure and Utilities Committee regarding the expenditure of funds	1—4 Added	17.220.010—17.220.040
71834	4-16-2024	An ordinance pertaining to the permitting of surface parking lots	2	8.70.010
			4	8.70.030
			5—14 Added	8.70.035

Ordinance Number	Date	Description	Section	Section this Code
71835	4-16-2024	Repealing the City Housing Conservation Program, and, enacting in lieu thereof, an ordinance that sets forth the procedures, requirements, fees, regulations, inspections, issuance, and revocation of certificates of inspection for dwelling units; adding rental dwelling unit registration	1 Rpld	25.56.010—25.56.150
			Added	25.56.010—25.56.170
71839	4-26-2024	Known as the "Safe Temperatures In Rentals," providing a temperature performance standard to protect the health and safety of tenants from extreme temperatures	1—5 Added	25.80.010—25.80.050
71840	5- 1-2024	Establishing an Impacted Tenants' Fund to protect tenants in the City who are forced to relocate from their rental unit due to condemnation for occupancy due to the landlord's failure to maintain the rental unit in conformance with code requirements; and reappropriating a portion of the funds received under the American Rescue Plan Act of 2021, Section 9901, Coronavirus State and Local Fiscal Recovery Act (the "Act") and previously appropriated by Ordinance Number 71393 to the Impacted Tenants' Fund; directing the funds collected from the enforcement of Building Code violations to the Impacted Tenants' Fund annually and appropriating such funds for a program of distribution to eligible tenants	1—3 Added	25.78.010—25.78.030
			5	25.33.110
71842	5- 1-2024	Setting forth regulations for the use of surveillance technology by the City; and requiring surveillance technology usage and specific technologies be approved by the Board of Aldermen after the required public hearing, before any such surveillance technology may be used and plans may be put into practice	1—9 Added	15.192.010—15.192.090
71844	4-15-2024	Amending Ordinance Number 70796, adopting the 2018 International Fire Code with the changes set forth in Ordinance Number 70796, by repealing Chapters 706.1, 901.6.3, and 901.18.8.2 of the 2018 International Fire Code as a adopted pursuant to Ordinance 70796,and enacting new Chapters 706.1, 901.6.3, and 901.18.8.2	1	25.06.030
71868	7- 2-2024	Pertains to fingerprint-based background check requirements as a condition of employment or contract, and regulating licensure as a watchman, private security officer, or courier within the City	1—5 Added	8.124.010—8.124.050
71877	7-31-2024	Setting forth regulations for attorneys who access and enter city correctional and detention facilities when visiting with persons who are detained therein	1 Added	16.30.010—16.30.045
71878	7-31-2024	Authorizing certain persons to access and enter city correctional and detention facilities for the purposes of oversight, transparency, and accountability	1—4 Added	16.12.040—16.12.070
71880	7-31-2024	Repealing provisions regarding abortion	1—24 Rpld	11.28.010—11.28.370
71882	7-25-2024	Repealing Ord. 69955, and in lieu thereof enacting a new ordinance relating to a "complete streets" policy, for the City, relating to the standards and guiding principles, for the planning, design, construction, or reconstruction of any public right of way to consider all users	1—6	

Ordinance Number	Date	Description	Section	Section this Code
71886	8-14-2024	Creating exceptions to certain parking, height and area regulations of the Zoning Code for any parcel or portion thereof located within a one-half mile radius of the planned Northside-Southside Metro transit stations (NS-SS Metro Stations) on the Green Line light rail alignment approved by the East West Gateway Council of Governments Board of Directors on February 28, 2024	1 Added	26.80.045
71887	8-14-2024	Relating to the appointment of and salaries of certain employees of the St. Louis Board of Election Commissioners pursuant to RSMo 115.045 and 115.049; allocating certain other employees to a grade with rate	2—7	4.68.010—4.68.060
71893	8-28-2024	Providing for the execution and delivery of an amended and restated maintenance cooperation agreement (the "A&R maintenance cooperation agreement"), between the City of St. Louis and Forest Park Forever, Inc.	2 Added	5.74.020.D
			3 Rpld	5.74.060.A.11
71895	11- 7-2024	An amendment to the Charter of the City of St. Louis repealing and replacing certain sections of Article XIII to provide for the Department of Streets to become a Department of Transportation with authority and duties regarding streets and refuse and authority to plan, engineer, and design City transportation projects and transportation programs	1	Charter, Art. XIII, §§ 1, 2, 6, 13
71896	8-13-2024	Submitting to the qualified voters of the City a proposed amendment to Article IV of the Charter and enacting a new section of Article IV to remove the cap on municipal fines for certain ordinance violations	1	Charter, Art. IV, § 24
71897	10-11-2024	Extending the permitted operating hours of marijuana dispensaries	1	26.04.010
			2	26.70.030
			3	26.70.040
71900	10-11-2024	Repealing Ordinance Number 68654 and enacting in lieu thereof a new ordinance relating to mobile electronic devices	1 Rpld	4.63.010—4.63.030
			2—4 Added	4.63.010—4.63.030
71905	10-17-2024	Regulating employer and employee working relationships between the City and all employees under the Circuit Attorney Office, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan	2—7	4.48.010—4.48.060
71914	11- 7-2024	Repealing Ch. 8.22 of the Revised Code of City of St. Louis to eliminate certain regulations for barbershops	1 Rpld	8.22.010, 8.22.020, 8.22.040—8.22.060
71915	11- 7-2024	Revising Ord. No. 71820, which pertains to the illegal discharge of firearms to change the term "weapon" to "firearm," change "criminal negligence" to "recklessly," and updating exceptions to the prohibition.	1, 2	15.139.010, 15.139.020
71916	11-15-2024	Amending Ordinance Number 71758; property tax credit for eligible senior taxpayers residing in the City of St. Louis.	1	5.104.010—5.104.060
71922	11-15-2024	Amending Section 3.72.030 of the Revised Codes of the City of St. Louis to add Circuit Attorney to the list of offices that have campaign contribution limits.	1	3.72.030

Ordinance Number	Date	Description	Section	Section this Code
71928	11-19-2024	Amending parts of Chapter 26 by adding new definitions of special residential uses; amending certain uses of special residential uses; and regulating special residential uses and site requirements.	1	26.04.010
			2	26.08.150, 26.08.387
			Rpld	26.08.065, 26.08.380
			Added	26.08.389.1
			3	26.32.025, 26.32.090, 26.36.100, 26.52.020, 26.52.025, 26.56.025, 26.60.020, 26.60.025, 26.64.025
			Rpld	26.32.040, 26.32.100
			4 Added	26.75.010—26.75.050
71934	11-26-2024	Repealing certain sections of Title 15 and Chapter 11.20 of Title 11 of the Revised Code of the City of St. Louis, addressing acts of public decency, offenses against public peace, and other miscellaneous offenses, in order to eliminate outdated, unconstitutional, or conflicting provisions that are inconsistent with state statutes.	1 Rpld	15.22.010—15.22.030
			2 Rpld	15.58.010, 15.58.020
			3 Rpld	15.100.010—15.100.070
			4 Rpld	15.48.010—15.48.030
			5 Rpld	15.142.010
			6 Rpld	11.20.010, 11.20.020
			7 Rpld	16.08.050
			8	15.34.030
71935	11-26-2024	Pertaining to parking within the "Forest Park Southeast Parking District," which establishes the location and restrictions for curb parking in the restricted parking zone in the district created by this ordinance; authorizing the placement of Permit Parking Only signs within the district; and prohibiting the parking, within the district, of any vehicle which does not obtain the authorized permit.	1 Rpld	17.103.010—17.103.050
				17.104.010—17.104.050
				17.135.010—17.135.050
				17.140.010—17.140.060
				17.165.010—17.165.050
				17.170.010—17.170.060
			2 Added	17.103.010—17.103.050
71937	12-10-2024	Amending Section 3.06.320 of the Revised Code of the City of St. Louis, providing for the Clerk of the Board of Aldermen to record Board of Aldermen votes on board bills and non-courtesy resolutions; and requiring those votes to be published on the City website.	1	3.06.320

Ordinance Number	Date	Description	Section	Section this Code
71940	12-10-2024	Amending portions of Ordinance Number 71730 to provide updates to definitions for "short-term rental permit" and "short-term rental unit;" amend Zoning Code Section 26.08 so that it incorporates the definitions created under Ordinance Number 71730; and update Zoning Code Section 26.76 to mirror provisions pertaining to short-term rentals located in "Single-Family A" zoning districts that are contained in Ordinance Number 71729.	1	26.04.010
			2 Rnbd	26.08.385, 26.08.386
			as	26.08.384.1, 26.08.385
			3	26.76.020
			4 Added	26.76.030
71943	12-24-2024	Repealing Ordinance Number 70924, codified as Chapter 25.74 of the Revised Code of Ordinance and enacting in lieu thereof a new ordinance to be known as the "Utility Coordination" policy for the purposes of outlining coordination and repair standards for construction, excavation, and other work that disrupts access to the right-of-way including vehicle and pedestrian traffic; and providing exemptions for emergency maintenance work.	1 Rpld	25.74.010—25.74.030
			2—8 Added	25.74.010—25.74.070
71946	12-30-2024	Requiring property owners to prevent and remediate mold in rental dwelling units; prohibiting an owner of a rental dwelling unit from obtaining a certificate of inspection if mold is present; providing for notice protocols to owners of units where mold is found; requiring owners to notify tenants of units where mold is found; directing the Department of Health to create materials with information about mold prevention, remediation, and hazards; empowering the Building Division to enforce this ordinance; and imposing penalties for violating this ordinance.	1—12 Added	25.82.010—25.82.120
71948	1-29-2025	Amending Chapter 3.99 of the Revised Code of the City of St. Louis to clarify the applicability of living wage requirements.	1	3.99.010.B
71953	1-30-2025	Establishing a Municipal Identification Card Program (Gateway Card) in the City of St. Louis to provide all residents access to a recognized form of government-issued photo identification.	1—4 Added	3.165.010—3.165.040
71962	2-28-2025	Amending Sections One, Two, Three and Four of Ordinance No. 71094, amending Section Ten of Ordinance No. 70767, and amending Section Eleven of Ordinance No. 69427, modifying existing and adding provisions pertaining to prevailing wage and workforce utilization compliance, administration, and requirements for City public works contracts, tax increment finance projects, abated projects, and City bonded projects, and clarifying remedies for failure to comply with prevailing wage and workforce utilization requirements, and setting forth certification requirements by contractors.	1	3.110.010
			2	3.110.020—3.110.040
			3	3.110.050, 3.110.060
			4 Added	3.110.065
			5	3.110.090
			6	3.110.130
			7	3.110.100
71963	2-11-2025	Regulating employer and employee working relationships between the City of St. Louis and all employees under the Classified Service, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan; repealing Ordinance Number 71686; and allocating certain other employees to a grade with rate.	1—27	4.10.010—4.10.270
			31	4.10.280

Ordinance Number	Date	Description	Section	Section this Code
71964	2-11-2025	Relating to the appointment of and salaries of certain employees in the Recorders' Office pursuant to Section 82.610 of the Revised Statutes of the State of Missouri, by repealing Ordinance Number 71174; allocating certain other employees to a grade with rate.	2—7	4.34.010—4.34.060
71965	2-11-2025	Relating to the position classifications and salaries of the employees in the Treasurer's Office; repealing Ordinance Number 71690 and enacting in lieu thereof certain new sections relating to the same subject matter and containing an emergency clause.	2—9	4.26.015—4.26.023, 4.26.040—4.26.060
71966	2-11-2025	Relating to the appointment of and salaries of certain employees in the Collector of Revenue's Office pursuant to Section 82.610, Revised Statutes of Missouri, by repealing Ordinance Number 71685; allocating certain other employees to a grade with rate.	2—8	4.44.010—4.44.070
71967	2-11-2025	relating to the position classifications and salaries of the employees in the Parking Division; repealing Ordinance Number 71689 and enacting in lieu thereof certain new sections relating to the same subject matter	2—9	4.30.010—4.30.024
71968	2-11-2025	Relating to the appointment of and salaries of certain Employees in the Sheriff's Office pursuant to Section 57.530, Revised Statutes of Missouri, by repealing Ordinance Number 71691; and allocating certain other employees to a grade with rate.	1—15	4.36.010—4.36.140
71969	2-11-2025	Regulating employer and employee working relationships between the City of St. Louis, and all employees under the Circuit Attorney Office, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a Deferred Compensation Plan, repealing Ordinance Number 71905, and allocating certain other employees to a grade with rate.	2	4.48.010—4.48.060
71970	2-11-2025	Regulating employer and employee working relationships between the City of St. Louis and all employees under the Medical Examiner's Office, including a compensation plan, terms and conditions of employment, benefits, leaves of absence, and authorization for a deferred compensation plan; repealing Ordinance Number 71746; and allocating certain other employees to a grade with rate.	1—28	4.54.010—4.54.280
71971	2-14-2025	Relating to the appointment of and salaries of certain employees of the St. Louis Board of Election Commissioners (the "Election Board") pursuant to RSMo 115.045 and 115.049, by repealing Ordinance Number 71702 and Ordinance 71887; allocating certain other employees to a grade with rate; and including an emergency clause.	2—7	4.68.010—4.68.060
71972	2-24-2025	Amending Section 11.42.040 of Chapter 11.42 of the Revised Code of the City of St. Louis to allow cottage foods to be sold outside of the individual's home.	1	11.42.040
71981	2-24-2025	Pertaining to commercial semi-trailer trucks, also known as a semis, or tractor-trailers; prohibiting such traffic along certain portions of Laclede's Landing Neighborhood, exempting from said prohibition emergency vehicles, including privately owned tow trucks when providing emergency service to non-commercial vehicles, vehicles making deliveries to nearby addresses, and vehicles with a gross vehicle weight (GVW) of less than twenty-six thousand (26,000) pounds.	1 Added	17.68.010.D

Ordinance Number	Date	Description	Section	Section this Code
71989	2-24-2025	Pertaining to administrative fines and effective code enforcement for vacant and deteriorated property.	2	25.33.040
71990	2-25-2025	Pertaining to fines and code enforcement for vacant and deteriorated property, including increased fines for unsecured buildings and unlawful demolitions, directing monies from these fines to the City's existing Vacant Building Initiative Fund, and expanding the use of this fund.	1	25.33.040
			2	25.01.030, 25.11.030, 25.20.030, 25.32.030
			3	25.01.020, 25.11.020, 25.20.020, 25.33.110(D)
71991	2-24-2025	Reconciling collection methods with state statute by modifying existing ordinances to more effectively and timely recover amounts owed to the City for fines and improvement costs as special tax bills.	1	25.33.110.C.1
			2	25.01.020, 25.64.010, 25.64.020
71993	4-14-2025	Amending Section 2 of Ordinance 67667, as codified in Chapter 13.100 of the Revised Code of the City of St. Louis to establish a custodian of records for public governmental bodies, including the Board of Estimate and Apportionment	1	3.100.020
71994	4-14-2025	Amending Chapter 3.02 to require all City boards and commissions to develop and adopt rules; and requiring those rules to be available to the public on the City website; and providing for Robert's Rules of Order to prevail whenever the rules of City boards and commissions are silent; and providing for training to be offered to members of boards and commissions to ensure familiarity with their rules, Sunshine Law, and Robert's Rules	1 Added	3.02.080, 3.02.090
71997	5-30-2025	Pertaining to parking in the Gate District neighborhood within the "Vista Avenue Residential Parking District;" which establishes the location and restrictions for curb parking in the restricted parking zone in the district established by this ordinance; incorporating the existing "Permit Parking Only" signs previously placed within the district; and prohibiting the parking, within the district, of any vehicle which does not obtain the authorized permit; containing definitions and a penalty clause	2—6 Added	17.225.010—17.225.050
72001	5-30-2025	Adopting the provisions of Section 137.082, RSMo., providing residential property owners whose homes are severely damaged or destroyed by the natural disasters with a pro rata reduction in property tax assessment, and adopting the other assessment provisions of Section 137.082, RSMo., pertaining to newly constructed property	1 Added	25.84.010
72002	6- 3-2025	Revising Ordinance Number 71840, which established the Impacted Tenants Fund; amending Section One to update tenant eligibility criteria; and authorizing the use of fund monies for administrative costs	1	25.78.010
			2	25.33.110.D
72025	7-11-2025	Amending interior requirements for residential rentals by striking all mentions of Exhibit A and inserting a new section named "Interiors of Buildings" that replicates the contents of Exhibit A and provides additional specifications related to occupancy load	1	25.56.010—25.56.170
			Added	25.56.180

Ordinance Number	Date	Description	Section	Section this Code
72027	7-11-2025	Adjusting minimum lot size or density of population regulations for single-family dwellings and some two-family dwellings	1	26.20.090, 26.24.080.A, 26.28.090, 26.32.090.A, 26.36.100.A
72030	7-11-2025	Directing the Neighborhood Stabilization Division to establish a registration process and registration database for registered neighborhood organizations; and establishing eligibility criteria for neighborhood organization applicants	1—4 Added	3.150.010—3.150.040
72031	7-11-2025	Requiring certain notices to be sent to relevant registered neighborhood organizations; and authorizing additional communication with registered neighborhood organizations	1	3.150.010
			2 Added	3.150.050
72034	9-22-2025	Identifying the powers delegated to the Sheriff while proscribing from the Office those activities not specifically provided to the Sheriff by the Missouri Constitution, by Missouri statute, by City of St. Louis ordinance, or as specifically authorized by the Board of Alderman	1—4 Added	3.09.010—3.09.040
72036	7-11-2025	Defining, permitting, and regulating accessory dwelling units (ADUs)	1 Added	26.08.022
			2	26.20.020
			3 Added	26.20.021
72037	9-19-2025	Establishing the rules of conduct pertaining to inspections and inspector qualifications regarding heating boilers, pressure vessels and steam generators in accordance with the National Board Inspection Code	1	25.03.020
72041	10-30-2025	Repealing certain sections of Chapter 22.28 relating to the Zoological Board of Control	1 Rpld	22.28.030
			2 Rpld	22.28.040, 22.28.050
72042	10-30-2025	Repealing various obsolete boards and commissions established under city ordinances	1 Rpld	3.125.010—3.125.080
			2 Rpld	3.46.010—3.46.140
			3 Rpld	3.58.010—3.58.090
			4 Rpld	3.64.010—3.64.030
			5 Rpld	3.66.010—3.66.100
			6 Rpld	3.67.010—3.67.040
			7 Rpld	3.70.010—3.70.050
			8 Rpld	3.76.010—3.76.040
			9 Rpld	3.105.010—3.105.050

STATE LAW REFERENCE TABLE

This table shows the location within the Code, either in the text or notes following the text, of references to the Revised Statutes of Missouri (RSMo), current edition. When previous editions are referenced, that date is provided in parenthesis following the citation.

RSMo Section	Section this Code
7.200 (1969)	25.02.020
8.250	Char. Art. XXII, Sec. 4
	Title 6
	6.04.020
8.960	3.110.050
21.750	Ch. 15.131
	Ch. 15.133
	Ch. 15.134
30.260	5.23.130
32.057	5.68.030
	5.68.040
Ch. 44	Ch. 3.40
43.535	8.124.010
44.115	3.40.100
Ch. 51	Char. Art. IX, Sec. 1
	3.18.010
52.020	Char. Art. XV, Sec. 21
	Ch. 5.08
Ch. 56	3.140.060
56.453	3.17.010
	3.17.030
56.540	4.48.030
57.408 (1978)	4.52.040
57.530 (1978)	4.36.010
	4.36.030
57.540	4.36.140
57.550 (1978)	4.52.040
57.550	4.36.080
Ch. 58	Ch. 3.22
58.215	11.62.240
58.700—58.765	Ch. 3.22
58.700 et seq.	11.62.240
58.760	Ch. 4.42
59.010—59.320	3.20.020
59.220	4.52.030
59.313	3.20.030
59.330—59.660	3.20.020
Ch. 67	5.90.040
67.280	Title 25
	25.02.010
	25.03.010
	25.07.010
	25.11.010
	25.13.010
	25.20.010
	25.32.010
67.280 et seq.	Ch. 3.120
67.451	25.01.020
67.453 et seq.	Ch. 3.87
	3.87.010
	3.87.020
	3.87.030
	3.87.040
67.619	25.57.030
67.657	25.57.030
67.5110—67.5121	23.59.020
	23.59.030
	25.76.020
67.5110—67.5131	23.59.040
67.5112	23.34.010
67.5113(1)	23.59.040
67.619.5	8.06.512
	8.06.514
67.657	8.06.512
	8.06.514
67.1830	25.74.010
Ch. 68	21.36.030
68.010—68.070	21.36.030

RSMo Section	Section this Code
68.045 (1978)	21.36.010
70.210—70.325	3.69.010
	3.69.020
70.210 et seq.	3.80.010
70.220	Title 6
70.230	Title 6
70.330	25.16.060
70.370	11.33.010
70.600 et seq.	Char. Art. XVIII, Sec. 4
71.140	Title 6
71.220	Char. Art. I, Sec. 1
71.285	11.04.070
	11.04.090
71.370—71.510	Char. Art. I, Sec. 1
71.370 et seq.	3.24.150
71.493	25.06.020
	25.20.010
71.520 et seq.	Char. Art. I, Sec. 1
71.530	Title 23
71.540	Title 23
71.610 et seq.	Char. Art. I, Sec. 1
	Char. Art. XX
	Title 7
	Ch. 8.06
	8.08.010
71.620.1	8.07.010
71.700	Title 23
71.710	Title 23
	Char. Art. I, Sec. 1
71.720	Ch. 11.46
	Char. Art. I, Sec. 1
71.780	Char. Art. I, Sec. 1
71.943	25.03.010
	25.07.010
	25.11.010
	25.32.010
82.100 et seq.	Char. Art. I, Sec. 3
82.120	Char. Art. IV, Sec. 21
82.180	Char. Art. II, Sec. 7
82.190	Char. Art. I, Sec. 1

RSMo Section	Section this Code
82.200	Char. Art. IV, Sec. 17
	1.01.020
82.230	Char. Art. I, Sec. 1
	Char. Art. XIX, Sec. 1
82.240	Char. Art. I, Sec. 1
82.310 et seq.	Char. Art. I, Sec. 1
	8.02.080
82.390 (1978)	4.52.020
82.390	4.28.030
	4.46.060
82.390.1	4.28.010
	4.28.060
82.450	Char. Art. I, Sec. 1
82.460	8.92.100
82.485	3.130.020
	17.62.055
	17.62.060
82.485 et seq.	Char. Art. XV, Sec. 24
	5.10.020
82.487	17.62.055
82.520 (1978)	4.52.050
82.520	4.26.023
82.550	Char. Art. VIII, Sec. 1
82.599.1	4.34.030
	4.44.040
82.607 (1978)	4.52.050
82.520	4.26.023
82.610	Char. Art. XV, Sec. 19
	4.34.010
	Ch. 4.44
	4.44.010
	5.08.030
82.630	Char. Art. XV, Sec. 19
	Ch. 4.44
	5.08.030
82.650	4.44.030
	23.40.050
82.650 (1978)	5.68.110
	17.52.040A
82.650 (1986)	5.23.080

RSMo Section	Section this Code
82.670	4.44.030
82.790—82.800	Char. Art. I, Sec. 1
82.790	Char. Art. XXI
82.815	Title 3
84.010 et seq.	Ch. 3.12
84.015 et seq.	Char. Art. I, Sec. 1
84.090	Ch. 11.58
84.340 (1949)	22.08.030
84.340	Ch. 8.36
84.341	15.192.080
84.344.4	3.12.070
84.344.8	3.140.030
86.047	Char. Art. X, Sec. 2
86.480—86.630 (1949)	4.18.335
Ch. 87	4.19.170
87.006	4.19.070
87.120 et seq.	4.18.010
87.120—87.370 (1978)	4.18.150
	4.18.160
87.120—87.370	4.18.125
	4.18.131
	4.18.165
87.120—87.371	4.18.015
	4.18.131
87.130	4.18.157
87.160	Char. Art. X, Sec. 2
87.170 (1978)	4.18.200
87.170	4.18.025
	4.18.132
	4.18.157
87.175	4.18.132
87.182	4.18.025
	4.18.132
87.195	4.18.130
87.200	4.18.157
87.205	4.18.130
	4.18.131
87.287	4.18.351
87.295	4.18.131
87.371	4.18.132

RSMo Section	Section this Code
Ch. 88	Char. Art. I, Sec. 1
	Char. Art. XXI
	Char. Art. XXII
	Char. Art. XXIII
Ch. 89	Title 26
	3.48.080
89.020 (2019)	26.75.040
89.090	26.04.020
	26.04.030
89.110	26.84.050
89.340	3.48.010
	24.04.030
89.380	3.48.120
90.010	Title 22
90.020	Title 22
90.580	5.26.060
90.585	5.26.060
90.640	Char. Art. XIV
90.650	Char. Art. XIV
	Ch. 22.28
Ch. 91	Char. Art. I, Sec. 1
91.010	Title 23
92.010	5.26.010
92.010 et seq.	Char. Art. I, Sec. 1
	Char. Art. XV, Sec. 8
	5.06.110
92.020	5.26.010
92.040 (1949)	8.10.030
92.040 (1959)	8.10.050
92.040	8.02.080
	8.54.020
	8.56.100
92.105 et seq.	Char. Art. I, Sec. 4
	5.22.010
92.210—92.300	Char. Art. I, Sec. 4
	5.22.023
92.350 (1978)	5.22.070
92.350	5.22.060
92.500	5.24.090
92.700—92.930	5.08.040

RSMo Section	Section this Code
92.700 et seq.	Ch. 5.08
	5.08.050
	25.33.010
	25.64.020
Ch. 94	5.68.040
94.500—94.550	5.24.050
94.500 et seq.	5.24.010
	5.24.030
	5.24.040
	5.24.060
	5.24.070
	5.24.080
94.540.5	5.68.030
94.550	5.68.040
94.550(1)	5.68.040
94.550(4)	5.68.040
94.560	5.68.040
94.600 et seq.	5.24.060
94.625	5.48.010
94.630	5.48.010
94.645	5.48.010
Ch. 95	Char. Art. I, Sec. 1
95.115 et seq.	Char. Art. XVII
	5.28.010
95.145	Char. Art. XVII, Sec. 3
95.485	5.30.020
95.530	Char. Art. XV, Sec. 25
Ch. 99	3.48.070
	11.05.080
99 (1986)	11.05.050
99.010 et seq.	11.06.370
99.130 (1969)	25.48.070
99.300—99.715	11.06.370
99.300 et seq.	3.82.010
	3.85.010
	11.06.010
	11.06.370
99.340	3.85.020
99.430	11.06.370
Ch. 99.430 et seq.	3.48.070

RSMo Section	Section this Code
99.450	11.06.370
99.800—99.865	3.83.050
	3.110.010
99.820.2	3.83.010
99.825—99.830	3.83.040
99.825	3.83.040
Ch. 100	3.48.070
	11.05.060
	11.05.080
100.300—100.620	11.06.370
100.300 et seq.	Ch. 3.84
	3.48.220
	3.84.010
100.310	11.06.370
100.330 et seq.	3.84.020
100.400	11.06.370
100.410	11.06.370
104.1090	4.16.030
105.300 et seq.	Ch. 4.20
105.350	4.20.020
105.370	4.20.030
105.452	3.160.010
105.452 (1994)	3.96.040
105.452 (2000)	3.69.020
105.454	3.142.020
	3.160.010
	4.07.020
105.487	3.142.030
	4.07.030
105.500 et seq.	3.92.010
105.669	4.19.050
105.687—105.690	4.16.100
105.691	4.16.030
	4.19.040
106.220 et seq.	4.06.030
107.170	Char. Art. XXII, Sec. 4
	3.87.080
	6.04.090
109.200—109.310	17.07.040
	15.192.030

RSMo Section	Section this Code
Chs. 115—130	Title 2
	Ch. 2.08
115.035	4.68.020
115.045	4.68.010
115.049	4.68.010
	4.68.030
115.061 et seq.	2.08.130
115.127	2.08.100
115.133 et seq.	2.08.170
115.237	2.08.110
115.339	2.08.010
115.341	2.08.020
115.351	2.08.080
115.357	2.08.060
115.403	2.08.250
115.447 et seq.	2.08.200
115.515—115.519	2.08.240
115.523	2.08.270
Ch. 118	2.08.390
120.140(2) (1969)	Char. Art. IV, Sec. 5
Ch. 122	Char. Art. II
122.650	Char. Art. II
122.650 (1969)	2.08.380
122.660 (1969)	2.08.380
122.670	2.08.390
122.670 et seq.	2.08.390
122.680	2.08.390
122.710	2.08.390
122.720	2.08.390
122.740	2.08.390
122.750	2.08.390
122.760	2.08.390
122.770	2.08.390
122.780	2.08.390
122.790	2.08.390
122.800	2.08.390
122.810	2.08.390
122.820	2.08.390
122.830	2.08.390
122.840	2.08.390

RSMo Section	Section this Code
122.850	2.08.390
122.860	2.08.390
122.870	2.08.390
122.880	2.08.390
122.890	2.08.390
122.900	2.08.390
122.910	2.08.390
122.920	2.08.390
122.930	2.08.390
122.940	2.08.390
122.950	2.08.390
122.960	2.08.390
Ch. 130	2.08.440
	3.72.020
	4.03.010
130.041	3.72.090
130.046	3.72.090
135.950—135.973	3.81.020
135.957	3.81.010
135.960	3.81.020
137.016	5.26.110
137.073.4(1)	5.104.040
137.082	25.84.010
137.082.8	25.84.010
137.112—137.114	5.26.100
	11.07.100
137.150	5.104.030
137.485—137.550	Char. Art. I, Sec. 1
	Char. Art. XV, Sec. 8
	5.06.110
137.525	Char. Art. XV, Sec. 2
	5.06.270
137.1050	5.104.030
138.140—138.180	Char. Art. XV, Sec. 10
	5.06.100
143.120—143.150 (1949)	5.22.090
144	5.25.010
144.010—144.510 (1959)	5.24.020

RSMo Section	Section this Code
144.010—144.510	5.24.010
	5.24.060
	5.68.010
	5.68.030
	5.68.040
144.010—144.525	5.24.090
	22.12.070
144.010—144.527	5.24.050
144.030	5.24.050
144.080	5.68.040
144.090	5.68.040
144.170	5.68.040
144.190	5.68.040
144.757	3.59.010
144.761	3.59.010
Ch. 150 (1969)	8.54.020
Ch. 150	5.04.150
150.010 et seq.	8.56.100
150.090	Char. Art. I, Sec. 1
	8.02.080
	8.04.020
	8.56.050
150.300 et seq.	8.54.020
150.350	Char. Art. I, Sec. 1
	8.02.080
	8.04.020
153.030	Title 23, div. II
Ch. 154	Char. Art. I, Sec. 1
154.040	21.20.090
182.150 (1961)	5.26.030
182.410 et seq.	3.50.010
182.460	15.72.010
184.020 (1961)	5.26.040
190.094 et seq.	Ch. 8.14
192.290	Char. Art. I, Sec. 1
192.310	Char. Art. I, Sec. 1
193.005—193.325	11.62.340
193.285	11.62.360
194.010	11.62.240
194.010 et seq.	Ch. 11.62

RSMo Section	Section this Code
194.020	11.62.240
Ch. 195	11.59.020
Ch. 195.010 et seq.	11.60.250
195.010	3.44.010
	15.124.010
195.010 et seq.	11.60.100
	11.60.300
Ch. 196	Ch. 11.36
	Ch. 11.38
	Ch. 11.40
	Ch. 11.44
	Ch. 11.46
	Ch. 11.48
196.015	Ch. 11.40
196.150	11.48.160
196.160	Ch. 11.48
196.190—196.250	Ch. 11.42
196.230	Char. Art. I, Sec. 1
196.520—196.614	Ch. 11.46
196.851—196.895	Ch. 11.46
196.931—196.959	Ch. 11.46
197.020	11.59.020
199.170 et seq.	11.56.480
201.199 et seq.	12.36.090
205.160—205.379	Title 12
205.330	12.20.040
205.968—205.972	25.32.020
	26.75.040
205.968—205.973 (1986)	11.72.080
209.150	Title 10
209.152	Title 10
210.030 et seq.	11.56.550
210.080	11.56.310
211.031	15.120.010
211.031.1(3)	15.139.030
211.181.3	15.139.020

RSMo Section	Section this Code
Ch. 213	Char. Art. XVIII, Sec. 7
	3.44.020
	3.44.070
	3.44.090
	3.44.130
	Ch. 15.18
213.020.3	3.44.020
213.075	3.44.100
213.076	3.44.090
	3.44.100
213.076.1	3.44.130
213.085.3	3.44.120
213.085.4	3.44.120
213.135	3.44.020
221.510(1)	11.60.280
226.010(7)	17.37.070
226.500—226.600	26.68.130
226.650 et seq.	Ch. 8.50
234.310	Title 19
234.330	Title 19
Ch. 237	Char. Art. I, Sec. 1
	Title 21
237.210	21.08.010
Ch. 250	Char. Art. I, Sec. 1
252.243	15.137.010
252.244	11.42.090
Ch. 260	11.02.350
260.200—260.345	11.03.010
260.200 et seq.	Ch. 11.02
260.270	11.70.060
	11.70.100
260.275	11.70.080
260.300.5	11.03.010
260.305.2	11.03.030
260.305.3	11.03.010
260.315	11.03.010
260.350—260.433	11.64.020
260.350—260.433i	11.64.020
260.546.2	11.64.130
260.900 et seq.	Ch. 8.52

RSMo Section	Section this Code
263.190—263.250	Ch. 11.04
263.255—263.267	Ch. 11.04
264.011 et seq.	15.140.010
265.300 et seq.	11.48.170
265.442	11.48.120
267.120	Ch. 8.90
267.450	Ch. 8.90
Ch. 269	Ch. 10.16
	11.30.010
270.010	10.08.010
Ch. 271	Ch. 10.08
276.010—276.080	Ch. 8.90
281.010 et seq.	Ch. 11.08
290.210—290.340	3.110.130
	6.20.010
	23.40.090
290.210 et seq.	25.10.200
290.528	3.99.010
Ch. 293	Ch. 8.60
294.040	8.26.090
300.010	17.195.010
Ch. 301	17.32.010
301.010	17.84.020
301.030	17.32.010
301.071	17.76.010
301.142	17.76.010
301.260	17.52.040B
301.280	Ch. 8.76
301.340	17.52.040A
	17.52.040B
302.020.2	17.37.070
302.130	17.83.020
302.302	17.40.040
	17.84.030
302.410	17.83.020
303 (1959)	8.14.100
303.010	4.12.010
303.024	17.53.040
303.190	8.98.172
303.230	17.53.040

RSMo Section	Section this Code
303.240	17.53.040
Ch. 304	17.16.190
	17.52.060
304.009	17.07.010
304.012	17.32.070
304.015	17.16.100
304.016	17.16.110
304.017	17.16.130
304.022	8.14.180
	17.14.020
	17.14.030
	17.14.050
	17.16.020
304.030	17.08.240
304.035	17.08.230
304.044	17.16.130
304.050	17.16.190
304.075(1), (3)	17.32.080
304.155 (1987)	17.56.160
	17.56.200
304.157 (1986)	8.110.235
304.160	17.16.260
304.170	17.30.030
304.170(1)	17.32.010
304.170(2)	17.32.050
304.170(4)	17.32.060
304.250	17.30.050
304.271	15.170.010
	17.08.030
304.271—304.361	17.07.010
304.281	17.08.120
	17.08.130
	17.08.140
304.301	17.08.150
304.341	17.12.020
304.351	17.07.010
	17.16.140
304.582	17.40.040
Ch. 305 (1959)	18.08.010
Ch. 305	Title 18

RSMo Section	Section this Code
305.170	18.08.010
307.175	17.14.010
307.178	Ch. 17.84
307.179	Ch. 17.82
	17.84.020
311.020	22.22.010
311.101	14.05.082
311.220	14.07.010
	14.08.010
311.280	14.03.170
311.290	14.03.030
311.300	14.04.020
	15.116.010
311.310	14.04.010
	15.116.010
311.320	15.116.050
311.325	15.116.030
311.680	14.05.080
312.010	22.22.010
312.010-2	22.22.010
313.800—313.850	4.08.020
317.001 et seq.	8.100.510
320.106 et seq.	Ch. 15.82
322.010—322.080	Char. Art. I, Sec. 1
Ch. 323	8.66.010
324.240 et seq.	8.55.020
325.010 et seq.	8.46.020
Ch. 327	25.01.020
	25.06.030
	25.11.020
	25.20.020
Ch. 329	8.55.010
Ch. 333	Ch. 8.38
	Ch. 8.106
	17.16.020
Ch. 334	11.115.010
	12.56.010
	12.56.020
Ch. 335	Ch. 12.40

RSMo Section	Section this Code
Ch. 337	11.115.010
	12.56.010
	12.56.020
Ch. 340	11.59.010
Ch. 341	25.04.020
341.090—341.200	25.04.020
341.090—341.220	25.04.020
Ch. 343	Ch. 8.18
334.010 et seq.	12.44.010
334.190	12.44.040
334.260	12.44.040
334.500 et seq.	Ch. 8.24
338.010 et seq.	12.44.030
338.090	11.24.030
339.010—39.170	8.80.020
343 (1969)	8.18.160
343.080	8.18.050
343.090	8.18.060
Ch. 353 (1986)	11.05.050
Ch. 353 (1949)	11.06.020
	11.06.050
	11.06.060
	11.06.360
Ch. 353	3.48.070
	11.05.060
	11.05.070
	11.05.080
	26.68.160
353	11.05.050
353.010 et seq.	11.06.010
353.020	11.06.370
353.060	11.06.370
353.110 (1949)	11.06.300
	11.06.310
353.110	11.06.320
	11.06.370
353.130.3 (1949)	11.06.220
353.110.3	11.06.370
353.150	11.06.370
353.150.4 (1949)	11.06.350

RSMo Section	Section this Code
Ch. 362	Ch. 8.20
Ch. 367	Ch. 8.72
Ch. 375	Ch. 8.20
Ch. 386	11.105.010
386.020	5.70.020
Ch. 387	Ch. 8.62
Ch. 391	Ch. 8.92
391.240	8.92.110
Ch. 392	Ch. 23.52
392.080	23.44.010
392.090	23.52.020
393.108 et seq.	Title 23
407.300	8.82.210
407.305	8.82.210
407.400(1)	15.170.010
Ch. 413	Char. Art. I, Sec. 1
	Title 9
413.275	9.22.030
417.250	8.28.010
417.260	8.28.020
417.270	8.28.030
417.280	8.28.040
417.290	8.28.050
430.230—430.250	12.48.010
432.070	Title 6
432.070—432.080	Char. Art. I, Sec. 1
441.065	11.105.020
441.233	11.106.020
Ch. 442	15.92.010
447.010	15.66.020
Ch. 448 (1986)	3.87.060
Ch. 448 (2000)	14.08.050
448.3-101	14.01.084
448.445	5.66.010
455.000—455.230	3.08.385
455.00	3.08.385
455.010	3.44.080
	11.100.010
455.030	3.44.080
455.030.3	3.44.080

RSMo Section	Section this Code
455.050	3.44.080
455.200—455.230	5.53.020
	5.66.030
455.200	3.08.385
455.205	5.66.010
479.011	11.95.120
	17.62.260
479.261	3.08.385
479.350(3)	1.12.045
479.350(4)	1.12.045
483.083	4.52.010
488.010—488.020	5.53.020
488.012.3(5)	3.08.394
488.027.2	3.08.394
488.2210	3.08.392
488.2215	3.08.390
488.5334	17.40.030
488.5336	3.08.380
488.607	3.08.385
493.100—493.120	Ch. 15.84
Ch. 523	Char. Art. XXI
523.040	Char. Art. XXI, Sec. 3
523.200 et seq.	3.36.550
Ch. 526 (1959)	8.06.280
Ch. 536 (1959)	8.12.080
Ch. 536 (1978)	17.52.080
	17.56.060
Ch. 536	3.44.110
	3.99.030
	4.18.060
	6.16.030
	6.20.060
	8.29.290
	8.29A.210
	8.28A.040
	15.51.070
	17.62.260
	24.40.060
	24.40.140
	25.33.110

RSMo Section	Section this Code
536	11.95.120
	14.06.025
	14.06.325
536.070	3.44.100
	11.90.090
	14.06.025
	14.06.325
	15.42.050
536.100—536.140	11.90.090
	14.06.025
	14.06.325
	15.42.050
	25.01.020
	25.05.090
536.100	11.05.050
	11.72.040
536.100 et seq. (1959)	8.110.110
536.110	24.28.010
	24.20.110
	24.20.120
536.150	8.78.170
536.163 (1957)	3.24.490
544.048	17.40.030
556.036	1.12.080
560.115	Ch. 15.64
Ch. 563	15.139.020
563.031	15.137.010
Ch. 565	11.100.010
	15.42.010
566.032	8.02.150
566.067	8.02.150
566.068	8.02.150
566.083	8.02.150
566.086	8.02.150
566.151	8.02.150
566.210	8.02.150
566.211	8.02.150
566.212	8.02.150
566.213	8.02.150
Ch. 566i	11.100.010

RSMo Section	Section this Code
567.060	15.34.080
568.020	8.02.150
568.045	8.02.150
568.050	Ch. 15.108
	15.116.020
568.070	8.72.100
568.080	8.02.150
568.090	8.02.150
569.100—569.120	15.78.080
569.100	Ch. 15.68
569.120	Ch. 15.68
569.140	15.74.070
	15.74.120
569.150	15.74.120
569.180	Ch. 15.64
570.030	15.60.020
570.140	11.40.030
	Ch. 11.48
571.010	15.130.040
571.010(8)	15.135.010
571.030	Ch. 15.132
571.030.12	15.137.010
571.030.13	15.137.010
571.094	15.131.010
571.094.20(8)	15.131.030
571.094.20(9)	15.131.030
571.101—571.121	15.131.030
571.107(15)	22.16.190
571.111.2	15.137.010
Ch. 573	15.32.060
573.023	8.02.150
573.025	8.02.150
573.035	8.02.150
573.037	8.02.150
573.040	8.02.150
	15.32.070
573.200	8.02.150
573.205	8.02.150
574.010	15.46.020
	15.46.030

RSMo Section	Section this Code
574.040	Ch. 15.52
575.080	15.06.010
575.120	15.08.010
	15.08.030
Ch. 576	Title 15
576.020	15.02.020
576.040	15.02.020
577.010	17.16.290
577.037	17.16.300
577.048	17.40.030
577.070	11.18.020
577.510	17.83.020
577.510(2)	17.83.020
Ch. 577	17.40.030
578.350	Ch. 12.56
579.025	10.04.280
590.030—590.050	15.137.010
590.100—590.180	3.08.375
590.100	3.08.375
590.502	15.192.080
590.653	3.140.010
	3.140.090
590.750	15.137.010
590.1040	15.139.020
Ch. 600	3.16.010
	3.16.020
Ch. 610 (1994)	3.96.040
Ch. 610	Char., Art. IX, § 30
	3.69.020
	3.100.010
	3.110.130
	3.160.120
	4.05.030
	8.29B.130
	11.59.040
	17.07.080
	25.04.030
610.01	3.59.020
610.010	3.59.020

RSMo Section	Section this Code
610.021	3.100.020
	3.110.130
	3.115.030
	3.140.100
	3.140.130
	3.150.040
	11.05.100
610.026	3.100.020
610.100 et seq.	3.12.040
643.40—643.250	11.34.110
643.140	11.34.070
643.250	1.34.110
644.032	22.12.070
644.033	22.12.070
700.010	11.105.010
701.300	Ch. 11.22
701.309	11.22.030
	11.22.240
11744 (1939)	2.08.390
11745 (1939)	2.08.390
11746 (1939)	2.08.390
11747 (1939)	2.08.390
11748 (1939)	2.08.390
11749 (1939)	2.08.390
11750 (1939)	2.08.390
11751 (1939)	2.08.390
11752 (1939)	2.08.390
11753 (1939)	2.08.390
11754 (1939)	2.08.390
11755 (1939)	2.08.390
11756 (1939)	2.08.390
11757 (1939)	2.08.390
11758 (1939)	2.08.390
11759 (1939)	2.08.390
11760 (1939)	2.08.390
11761 (1939)	2.08.390
11762 (1939)	2.08.390
11763 (1939)	2.08.390
11764 (1939)	2.08.390
11765 (1939)	2.08.390

RSMo Section	Section this Code
11766 (1939)	2.08.390
11767 (1939)	2.08.390
11768 (1939)	2.08.390
11769 (1939)	2.08.390
11770 (1939)	2.08.390
11771 (1939)	2.08.390
11772 (1939)	2.08.390
11773 (1939)	2.08.390
11774 (1939)	2.08.390

— A —

ADMINISTRATION
Affordable Housing Commission 3.59.010 et seq.
See: AFFORDABLE HOUSING COMMISSION
Agency on Training and Employment 3.78.010 et seq.
See: AGENCY ON TRAINING AND EMPLOYMENT
Agreements, professional service
Authority to enter into contracts 3.98.010
Committee
Members—Disclosure 3.98.030
Recommendation and approval 3.98.020
Names and addresses of entities awarded contracts 3.98.040
Selection process—Rules and regulations 3.98.050
Violation 3.98.060
Annual reports to be filed with Mayor 3.02.010
Arts and Humanities Commission 3.57.010 et seq.
See: ARTS AND HUMANITIES COMMISSION
Board of Aldermen 3.06.020 et seq.
See: BOARD OF ALDERMEN
Board of Police Commissioners 3.12.005 et seq.
See: BOARD OF POLICE COMMISSIONERS
Board of Public Service 3.26.010 et seq.
See: BOARD OF PUBLIC SERVICE
Campaign contribution limits
Amounts, campaign contribution limitation 3.72.030
Contributions from persons fourteen and under 3.72.060
Definitions 3.72.020
Determination of maximum contribution 3.72.050
Findings 3.72.010
Jurisdiction, powers, duties, and procedures of the Municipal Officials and Officers Ethics Commission 3.72.090
Municipal Officials and Officers Ethics Commission 3.72.070
Repealed 3.72.040
Staff and records 3.72.080
Violations 3.72.100
Charity Solicitations Commission 3.60.010 et seq.
See: CHARITY SOLICITATIONS COMMISSION
Circuit Attorney 3.17.010 et seq.
See: CIRCUIT ATTORNEY
City Courts 3.08.010 et seq.
See: CITY COURTS
City Emergency Management Agency 3.40.010 et seq.
See: CITY EMERGENCY MANAGEMENT AGENCY
City Journal 3.52.010 et seq.
See: CITY JOURNAL
ADMINISTRATION (Cont'd.)
City Marshal 3.14.010 et seq.
See: CITY MARSHAL
City Vehicles 3.54.010 et seq.
See: CITY VEHICLES
Civil Rights Enforcement Agency 3.44.010 et seq.
See: CIVIL RIGHTS ENFORCEMENT AGENCY
Clean Energy Development Board 3.120.010 et seq.
See: CLEAN ENERGY DEVELOPMENT BOARD
Community Development Administration 3.47.010 et seq.
See: COMMUNITY DEVELOPMENT ADMINISTRATION
Community Mediation 3.145.010 et seq.
See: COMMUNITY MEDIATION
Contracts subject to City earnings tax 3.02.070
Convention Center and Auditorium Commission 3.62.010 et seq.
See: CONVENTION CENTER AND AUDITORIUM COMMISSION
Coroner 3.22.010 et seq.
See: CORONER
Criminal Justice Coordinating Council 3.69.010 et seq.
See: CRIMINAL JUSTICE COORDINATING COUNCIL
Department of Health and Hospitals 3.38.010 et seq.
See: DEPARTMENT OF HEALTH AND HOSPITALS
Department of Public Utilities 3.30.010 et seq.
See: DEPARTMENT OF PUBLIC UTILITIES
Department of Streets 3.32.010 et seq.
See: DEPARTMENT OF STREETS
Department of Welfare 3.36.010 et seq.
See: DEPARTMENT OF WELFARE
Disclosure of potential conflicts of interest and substantial interests
Conflicts of interest 3.142.020
Declaration of policy 3.142.010
Filing of reports 3.142.040
Reports, disclosure 3.142.030
Division of Civilian Oversight 3.140.010 et seq.
See: DIVISION OF CIVILIAN OVERSIGHT
Enhanced Enterprise Zone Board 3.81.010 et seq.
See: ENHANCED ENTERPRISE ZONE BOARD
Equipment Services Division to Department of President of Board of Public Service
Established—Commissioner—Appointment—Duties—Staff 3.29.010
Fire Department 3.24.010 et seq.
See: FIRE DEPARTMENT
First Source Jobs Policy 3.90.010 et seq.
See: FIRST SOURCE JOBS POLICY

ADMINISTRATION (Cont'd.)
Forest Park Advisory Board 3.96.010 et seq.
See: FOREST PARK ADVISORY BOARD
Human Development Corporation 3.42.010 et seq.
See: HUMAN DEVELOPMENT CORPORATION
Information Technology Services Agency 3.43.010 et seq.
See: INFORMATION TECHNOLOGY SERVICES AGENCY
Land clearance for Redevelopment Authority
Approval 3.85.010
Notification of adoption—Commissioners—Appointment 3.85.020
Land Reutilization Authority 3.82.010 et seq.
See: LAND REUTILIZATION AUTHORITY
Law Department 3.10.010 et seq.
See: LAW DEPARTMENT
Libraries—Deposit of City Reports 3.50.010 et seq.
See: LIBRARIES—DEPOSIT OF CITY REPORTS
Living wage
Definitions and applicability 3.99.010
Implementation and enforcement 3.99.030
Other requirements, living wage and 3.99.020
Posting 3.99.040
Mayor 3.04.010 et seq.
See: MAYOR
Memorandums of understanding
Bargaining procedure 3.92.070
Change in memorandum of understanding 3.92.120
Definitions 3.92.020
Employees not to be discriminated against 3.92.060
Exclusive bargaining representative
Decertification 3.92.040
Duty to act fairly 3.92.050
Recognition 3.92.030
Fair share agreement 3.92.090
Grievance adjustment 3.92.100
Information to be made available 3.92.080
Policy declaration 3.92.010
Work slowdown or strike prohibited 3.92.110
Municipal identification card program (gateway card) 3.165.010 et seq.
See: MUNICIPAL IDENTIFICATION CARD PROGRAM (GATEWAY CARD)
Neighborhood Improvement Districts 3.87.010 et seq.
See: NEIGHBORHOOD IMPROVEMENT DISTRICTS
Neighborhood rehabilitation
Acquisition of houses—Purpose 3.86.010
Appraisal 3.86.020
Rehabilitation demonstration house fund 3.86.030
Sale of property 3.86.040

ADMINISTRATION (Cont'd.)
Office of Fiscal Empowerment 3.130.010 et seq.
See: OFFICE OF FISCAL EMPOWERMENT
Permit and license issuance
Distribution of application summaries 3.02.050
Exemption for license renewal 3.02.040
Summary of applications required 3.02.030
Planetarium Commission 3.74.010 et seq.
See: PLANETARIUM COMMISSION
Planned Industrial Expansion Authority 3.84.010 et seq.
See: PLANNED INDUSTRIAL EXPANSION AUTHORITY
Planning and Urban Design Agency 3.48.010 et seq.
See: PLANNING AND URBAN DESIGN AGENCY
Poet Laureate and Poet Laureate Task Force 3.135.010 et seq.
See: POET LAUREATE AND POET LAUREATE TASK FORCE
President of Board of Public Service 3.28.010 et seq.
See: PRESIDENT OF BOARD OF PUBLIC SERVICE
Professional service contracts
Applicability 3.97.070
Authority to enter into contracts 3.97.010
Committee
Members—Disclosure 3.97.030
Recommendation and approval 3.97.020
Names and addresses of entities awarded contracts 3.97.040
Selection process for contracts 3.97.050
Violation 3.97.060
Professional sports facility
Definitions 3.91.010
Procedures 3.91.020
Voter approval required 3.91.030
Public buildings and property 3.56.010 et seq.
See: PUBLIC BUILDINGS AND PROPERTY
Public records
Custodians of records 3.100.020
Definitions 3.100.010
Public works contracts
Apprenticeship goal 3.110.020
City resident participation 3.110.040
Community Jobs Board 3.110.070
Complete Streets Policy 3.110.120
Compliance certifications required 3.110.065
Compliance tracking, monitoring, and reporting 3.110.050
Definitions 3.110.010
Implementation and administration 3.110.060
Non-discrimination policy requirement 3.110.100
Noncompliance 3.110.090

ADMINISTRATION (Cont'd.)
Public works contracts (Cont'd.)
Participation goals for minorities and women 3.110.030
Prevailing wage requirements 3.110.130
Reporting requirement 3.110.110
Waivers and exceptions 3.110.080
Recorder of Deeds 3.20.010 et seq.
See: RECORDER OF DEEDS
Regional Criminal Justice Computerized Information Processing Service 3.80.010 et seq.
See: REGIONAL CRIMINAL JUSTICE COMPUTERIZED INFORMATION PROCESSING SERVICE
Register 3.18.010 et seq.
See: REGISTER
Registered neighborhood organizations
Notification to
Definitions 3.151.010
Neighborhood notices and neighborhood engagement 3.151.020
Process and database for
Definitions 3.150.010
Eligibility to register 3.150.030
Registration database and registration 3.150.020
Report 3.150.040
Returned checks—Service charge 3.02.060
Rules Required for City Boards and Commissions 3.02.080
Sheriff 3.09.010
See: SHERIFF
Special events 3.45.010 et seq.
See: SPECIAL EVENTS
St. Louis Transition Center for the Homeless 3.88.010 et seq.
See: ST. LOUIS TRANSITION CENTER FOR THE HOMELESS
Tax Increment Financing Commission 3.83.010 et seq.
See: TAX INCREMENT FINANCING COMMISSION
To be open five days, offices 3.02.020
Training Required for City Boards and Commissions 3.02.090
Transfer of agreements
Applicability 3.94.050
Approval to be based on best interests of City 3.94.030
Prior consent from approving authority required 3.94.010
Proposed assignment to be approved by same approving authority as original agreement 3.94.020
Violation—Declaration of agreement as null and void 3.94.040

ADMINISTRATION (Cont'd.)
Transparency in government
Definitions 3.115.030
Distribution of recording to the public 3.115.050
Exceptions for closed meetings 3.115.070
Findings 3.115.020
Official YouTube Channel of the City of St. Louis 3.115.060
Recording public meetings 3.115.040
Title 3.115.010

ADULTERATION
Candy 11.40.030
Food or drink 11.40.020
Liquids intended for drink 11.40.040
Sale of adulterated provisions 11.40.010
Unwholesome food 11.40.050

ADVISORY COUNCIL ON AGING
Duties—Advisory Council 3.36.510
Established 3.36.470
Meetings—Advisory Council 3.36.500
Membership—Established—Advisory Council 3.36.490
Powers and duties 3.36.480

AFFORDABLE HOUSING COMMISSION
Collection of local use tax 3.59.010
Establishment and composition of Affordable Housing Commission 3.59.020
Operation of Affordable Housing Commission 3.59.030
Repeal or amendment 3.59.040

AGENCY ON TRAINING AND EMPLOYMENT
Comprehensive training and employment plan 3.78.030
Created 3.78.010
Director—Appointment—Duties 3.78.020

AIR POLLUTION
Asbestos 11.34.100
Commissioner to approve certain alteration, renovation, demolition, and occupancy applications 11.34.080
Continuation of existing actions 11.34.040
Cooperation of local governmental agencies required 11.34.150
Definitions 11.34.050
Enforcement 11.34.160
Fee schedule 11.34.170
Motor vehicle idling prohibited 11.34.120
Name 11.34.010
Open burning restrictions 11.34.130
Policy statement 11.34.020
Powers and duties 11.34.060
Prohibited, nuisance 11.34.110
Right of inspection, disclosure, and submittal of requested information 11.34.140

AIR POLLUTION (Cont'd.)
Source-specific emergency procedures 11.34.090
Statement of delegated authority 11.34.030
Variances 11.34.070

AIRPORT AUTHORITY
City Airport Commission 18.08.030
Concession contracts 18.08.080
Contracts 18.08.060
Director of Airports 18.08.020
Employees 18.08.040
Established 18.08.010
Fees and charges 18.08.070
Management and development 18.08.050

AIRPORTS AND AVIATION
Airport Authority 18.08.010 et seq.
See: AIRPORT AUTHORITY
Consent of City to transfer of rights
Adopted 18.10.010
Applicability 18.10.060
Conflict with FAA regulations 18.10.070
Decision based on interests of City 18.10.040
Prior consent of City—Required 18.10.020
Terms and conditions—To be prescribed by Director of Airports 18.10.030
Violation 18.10.050
Establishment of airport
Additions to airport 18.04.030
Dedication of airport property 18.04.040
Public airport established—Location 18.04.020
Sale of airport property 18.04.050
St. Louis Lambert International Airport 18.04.010
Gifts to airport
Acceptance 18.16.010
Committee 18.16.020
Selections 18.16.030
Special account 18.16.040
Revenue and improvements, airport
Accounting system 18.12.010
Airport revenue fund
Allocations 18.12.030
Deposits 18.12.020
Budget 18.12.060
Construction fund 18.12.040
Investments 18.12.050

ALARM SYSTEM BUSINESSES
Alarm systems 8.13.050
Applicability of provisions 8.13.020
Automatic dialing and prerecorded message alarm systems prohibited 8.13.110
Definitions 8.13.010
Deliberate false alarms 8.13.100

ALARM SYSTEM BUSINESSES (Cont'd.)
Dispatch of panic alarm on burglary alarm system prohibited 8.13.120
False alarms 8.13.080
Local alarms not to sound for more than fifteen minutes 8.13.140
Penalty for violation 8.13.150
Registration of alarm systems with Department of Public Safety 8.13.040
Reporting, alarm 8.13.060
Requirements, alarm business 8.13.030
Responsibility of alarm subscriber or user 8.13.070
Suspension 8.13.090
Vision-obscuring device prohibited 8.13.130

ALCOHOLIC BEVERAGES
Definitions
3:00 a.m. Closing permit 14.01.460
Ballroom 14.01.030
Boat 14.01.040
Brewpub 14.01.050
C.O.L. license 14.01.070
Club 14.01.060
Commissioner 14.01.080
Common eating and drinking area 14.01.090
Conducting business 14.01.095
Controlled access liquor cabinet system 14.01.110
Controlled access liquor cabinet 14.01.100
Convention trade area 14.01.120
Corporate signature 14.01.122
Definitions 14.01.020
Disorderly place 14.01.130
Drink license 14.01.140
Employees 14.01.150
Et al 14.01.155
Generally 14.01.010
Hotel 14.01.160
Intoxicating liquor 14.01.170
Lewd and indecent conduct 14.01.180
Licensed premises 14.01.200
License 14.01.190
Majority 14.01.202
Mall 14.01.210
Microbrewery 14.01.220
Motion picture theater 14.01.230
Motor vehicle service station 14.01.240
Nightclub 14.01.245
Nonintoxicating beer 14.01.250
Nonresident wholesaler, manufacturer and distributor 14.01.260
Obscene 14.01.270
Off premises gift shop 14.01.280
Original package 14.01.290

ALCOHOLIC BEVERAGES (Cont'd.)
Definitions (Cont'd.)
Package license 14.01.300
Performance 14.01.310
Person 14.01.320
Petition circle 14.01.330
Picnic group—Defined 14.01.335
Picnic license 14.01.340
Premises 14.01.350
Private place 14.01.352
Property owner 14.01.354
Public place 14.01.353
Qualified establishment (restaurant/bar) 14.01.360
Qualified packages or containers 14.01.370
Registered guest 14.01.380
Resort 14.01.390
Restaurant bar 14.01.400
Retail license 14.01.410
Room 14.01.420
Standard size bowling lane 14.01.430
Sunday ballroom license 14.01.435
Sunday Convention trade area license 14.01.436
Taproom brewery 14.01.440
Tenant or resident 14.01.450
Transportation company 14.01.470
Wholesale liquor dealing agent 14.01.480
Excise Division 14.02.010 et seq.
See: EXCISE DIVISION
General regulations
Accessibility of premises 14.03.090
Changes in premises 14.03.210
Cleanness of Establishment 14.03.022
Convention trade area exceptions 14.03.230
Display of license and permits 14.03.060
Hours of operation
Daily 14.03.030
Sunday—Intoxicating liquor 14.03.040
Inspection and seizing of evidence 14.03.095
Liquor over twenty-two (22) percent prohibited on twenty-two (22) percent retail premises 14.03.140
Liquor prohibited—On five (5) percent retail premises 14.03.130
Minimum quantity in original package
Beer 14.03.100
Liquor other than beer 14.03.110
Notice of violations to license holder 14.03.015
Package liquor stores—Required display of placard 14.03.070
Payment for deliveries 14.03.180
Persons other than licensees, employees of liquor licensee, contractors and entertainers not to be on licensed premises during hours when licensee is prohibited from selling liquor 14.03.055

ALCOHOLIC BEVERAGES (Cont'd.)
General regulations (Cont'd.)
Police responsible for enforcement 14.03.010
Prohibited displays 14.03.080
Records and reports 14.03.200
Responsibility of licensees 14.03.020
Retailers not to purchase from other than wholesaler 14.03.170
Special restrictions on boats 14.03.150
Storage of intoxicating liquor and nonintoxicating beer 14.03.190
Sunday package liquor permit and hours of operation 14.03.052
Taverns open to public view 14.03.160
Licensing, general
Certain places, licenses prohibited in 14.06.270
Change in Managing Officer 14.06.207
Conduct of business upon licensed premises 14.06.340
Conduct of hearing and right of appeal 14.06.325
Corporate licensees required to maintain corporate status 14.06.200
Disposition of fees 14.06.090
Drinking while working, employee prohibition from 14.06.225
Duration 14.06.040
Employees
Fingerprinting 14.06.220
Qualifications 14.06.210
Extension of license 14.06.060
Facts, change of 14.06.165
Fee—Package licensee 14.06.260
Issuance—Licenses and permits 14.06.030
Licensees to notify Excise Commissioner of employees 14.06.240
License
Additional requirements for restaurant bar initial license applications 14.06.028
Applications 14.06.020
Emergency measures 14.06.295
Initial license applications of restaurant bar, microbrewery, taproom brewery, or brewpub 14.06.025
Jurisdictional cooperation 14.06.297
Required 14.06.010
Revocation, cancellation, suspension, or fine
General 14.06.290
Picnic licenses 14.06.310
Procedure 14.06.320
Renewed licenses 14.06.300
Transfers 14.06.330
Lost or destroyed license 14.06.075

ALCOHOLIC BEVERAGES (Cont'd.)
Licensing, general (Cont'd.)
Managing officers, when, qualifications—Limitations on management agreements 14.06.205
Manufacturers and wholesalers not to have interest in retail businesses 14.06.080
New petitions for corporations 14.06.190
Operating without a license—Prospective bar to license application 14.06.015
Ownership, change of 14.06.160
Package license—Businesses enumerated 14.06.250
Persons functioning as employees 14.06.230
Qualifications of licensee
Corporations and clubs 14.06.110
Financial interest—In other drink licenses 14.06.150
Financial interest—Intoxicating liquor and nonintoxicating beer licenses 14.06.140
Financial interests—Corporations 14.06.120
Natural persons 14.06.100
Partnerships 14.06.130
Record restrictions and zoning laws 14.06.280
Renewal of license 14.06.050
Separate license for each location 14.06.070
Transfer of corporate stock
All other corporations 14.06.180
Of corporations listed on stock exchanges 14.06.170
Manufacturers, wholesalers and distributors
Alcoholic content on label 14.07.030
License fees 14.07.010
Microbrewery license 14.07.060
Sales to licensed dealers only 14.07.020
Shipment outside City to evade Code 14.07.040
Transportation companies to report shipments 14.07.050
Regulations relating to minors
Minors
Consuming on licensed premises 14.04.015
Distilleries and warehouses, employees of 14.04.050
Employing on premises for which a license has been issued—Sale of commodities other than alcohol 14.04.060
Exceptions for waiters and waitresses 14.04.040
For entertainment—Employing 14.04.070
On posted premises 14.04.090
Sale of liquor or beer 14.04.010
Selling or delivering
Exception 14.04.030
Prohibited 14.04.020
Solicitation of another to purchase liquor or beer—Use of false identification 14.04.080

ALCOHOLIC BEVERAGES (Cont'd.)
Regulations relating to minors (Cont'd.)
Posting premises 14.04.100
Retail licenses
3:00 a.m. closing permit—Issuance—Conditions—Exemptions 14.08.220
Activities on licensed premises not limited to those identified on application—Exceptions—Excise Commissioner to be notified of new activities to be conducted on licensed premises 14.08.055
Annual caterers permit 14.08.235
Common eating and drinking area—Permit—Sale of drinks for consumption 14.08.180
Controlled access liquor system 14.08.210
Extension of protested license 14.08.160
Hearing on protest—Notice—Procedure 14.08.130
License
Application
Contents 14.08.020
Neighborhood approval—Exemptions—Petition contents 14.08.050
Notice—Hearings 14.08.060
Approval
Discretion of Excise Commissioner 14.08.080
Generally 14.08.070
Detrimental to neighborhood—Factors to be considered by Excise Commissioner in making determination 14.08.040
Renewal applications— When—How made 14.08.090
Motor vehicle service stations 14.08.190
Persons who own property, reside or conduct business within the petition circle 14.08.030
Petitions, protest—Contents—Time for collection of signatures 14.08.120
Protests
Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest 14.08.150
Necessity of majority of signatures on petition protesting continuation of license—Effect of majority of signatures on petition protesting a license application 14.08.140
Renewal of licenses—Discretion of Excise Commissioner—Suspension or extension in certain circumstances 14.08.100
Submission and Withdrawal of signatures from consent or protest petitions 14.08.170
Summer garden/sidewalk cafe 14.08.200
Temporary catering permits 14.08.230
Term—Fees—Licenses and permits 14.08.010
When and how initiated—Protests against licenses or applications 14.08.110

ALCOHOLIC BEVERAGES (Cont'd.)
Violations, general
Consumption of liquor on unlicensed premises 14.05.040
Cooperate with liquor agents/law enforcement, failure to 14.05.092
Disorderly place—Sale by the drink for consumption off-premises 14.05.080
Drinking of alcoholic beverages and open containers on package premises—Prohibited 14.05.130
Exceptions—Disturbing the peace—Drinking in public 14.05.010
Failure to obey a subpoena issued by the Excise Commissioner—Violation 14.05.160
Habitual drunkards or drunken persons, sale to 14.05.100
Improper acts 14.05.090
Interfering with a liquor control officer 14.05.170
Lewd or indecent conduct or entertainment prohibited 14.05.110
Licensees required to allow public to use telephones—When 14.05.150
Liquor prohibited
On five (5) percent beer premises 14.05.060
On twenty-two (22) percent premises 14.05.070
Noise level for amplified system 14.05.095
Open containers leaving licensed premises 14.05.082
Prohibited, liquor refilling 14.05.125
Prostitution, solicitation for 14.05.020
Sale of intoxicating liquor or nonintoxicating beer to persons occupying an automobile—Prohibited 14.05.140
Solicitation—Assisting 14.05.030
Spiking prohibited 14.05.120
Use of premises during suspension or closing order 14.05.098

ALLEYS
Definitions and rules of construction 1.08.240

AMBULANCES
Ambulance license
Application 8.14.030
Change of ownership 8.14.040
Defacing 8.14.060
Transfer 8.14.050
Appeals 8.14.200
Attendants and drivers
Applicant investigation—License nontransferable 8.14.140
License—Application—Fee 8.14.130
Definitions 8.14.010
Disaster and emergency aid 8.14.090
Duties of director 8.14.110

AMBULANCES (Cont'd.)
Equipment 8.14.120
General standards 8.14.070
Inspections 8.14.080
Liability insurance 8.14.100
Obedience to traffic laws 8.14.180
Penalty for violation 8.14.190
Records 8.14.170
Renewal—Licenses 8.14.150
Required—Licenses 8.14.020
Revocation—Licenses 8.14.160

ANIMALS
Cruelty to animals and birds
Declawing of cats prohibited 10.12.070
Excepted birds 10.12.050
Fine and penalty disposition 10.12.020
Molestation of birds 10.12.040
Penalty—Cruelty to animals 10.12.010
Sale or dyeing of newly hatched birds 10.12.060
Tying calf and sheep legs 10.12.030
Dead animals 10.16.010 et seq.
See: DEAD ANIMALS
Dogs and cats
Adoption of strays 10.04.170
Animals Putting Persons in Fear 10.04.145
Dangerous dogs 10.04.270
Definitions 10.04.010
Destruction of sick and severely injured animals 10.04.210
Disposal of unclaimed animals 10.04.190
Dogfighting 10.04.280
Emergency decrees 10.04.290
Enticing dog or cat—Refusal to surrender 10.04.230
Exceptions—Neutering and spaying 10.04.275
Feces removal
Confinement of dog 10.04.330
Required 10.04.310
Service dog excepted 10.04.340
Food service establishments—Dogs in permitted outdoor dining area 10.04.345
Functions and operation—Animal regulation center established 10.04.110
Held for observation, release of animals 10.04.180
Housing of stray and biting animals 10.04.120
Interfering with health officer or agent 10.04.360
Leashing of dogs 10.04.220
Neuter Assistance and Education Fund 10.04.165
Nontransferability and prohibited uses—Registration tags 10.04.080
Notice to owner/guardian 10.04.130
Penalty for violation 10.04.350
Procedure when animal bites person 10.04.260

ANIMALS (Cont'd.)
Dogs and cats (Cont'd.)
Public parks, dog training activities in 10.04.287
Rabies or suspicion of rabies 10.04.240
Registration tag
Replacement after loss 10.04.090
Unauthorized use prohibited 10.04.100
Regulations by Commissioner of Health 10.04.300
Release fees
Licensed dogs or cats 10.04.150
Unlicensed animals 10.04.160
Relinquishment of owned dogs and cats to the animal regulation center 10.04.115
Running at large 10.04.140
Service animals 10.04.020
Stray cats—Prohibited 10.04.225
Tethering, confinement and treatment of dogs and cats on owner/guardian's property 10.04.285
Transient dogs 10.04.040
Vaccination-registration
Certificate required 10.04.050
Of dogs, cats, kittens, puppies required—Kennels—Exceptions—Tags 10.04.060
System—Requirements, fees and information files 10.04.070
Veterinarian reports 10.04.250
Miscellaneous provisions. See also herein specific subjects
Creating nuisance 10.20.040
Each sale separate offense 10.20.160
Horse defined 10.20.070
Keeping hogs over forty-eight hours 10.20.050
Leaving animals unfastened or unguarded 10.20.120
Manner of riding or driving animals 10.20.100
Pigpens 10.20.060
Rabbits 10.20.150
Sale of young fowl 10.20.140
Turning animals loose 10.20.110
Unauthorized use of horses 10.20.090
Unclean stables and yards 10.20.030
Watering pail on horse-drawn vehicle 10.20.080
Raising and keeping of certain animals
Certain animals, keeping of prohibited 10.20.015
Cruelty to animals, prohibition against 10.20.017
Definitions 10.20.010
Enforcement 10.20.014
Keeping more than four animals in a residential zone, prohibition against 10.20.011
Penalty for violation 10.20.020
Prohibition against keeping more than four animals in a nonresidential zone unless a kennel permit has first been obtained 10.20.012
Regulation of animal housing 10.20.016

ANIMALS (Cont'd.)
Raising and keeping of certain animals (Cont'd.)
Rules to be promulgated by Health Commissioner—Enforcement, issuance of kennel permits, issuance of noncommercial kennel permits, issuance of small farm animal permits 10.20.013
Strays
Advertisement and sale of impounded animals 10.08.020
Duty of Marshal 10.08.030
Running at large prohibited 10.08.010
Trap-neuter-return (TNR) of feral cats
Colonies, feral cat 10.30.020
Definitions, feral cats 10.30.010
Disposition of feral cat colony cats 10.30.030
Wild animals 10.24.010 et seq.
See: WILD ANIMALS

APPOINTMENT AND REMOVAL
City Counselor to represent City in removal proceeding—Exceptions 4.06.050
Civil service to be followed 4.06.010
Depositions in removal proceedings 4.06.040
Report of name, position, address and salary 4.06.020
Salary during suspension 4.06.060
When officers shall be removed 4.06.030

APPROPRIATIONS
Board of estimate and apportionment Charter Art. XVI-1 et seq.
See: BOARD OF ESTIMATE AND APPORTIONMENT

ARCADES
Amusement device in certain open air space prohibited 8.16.170
Approval 8.16.080
Authorization for issuance—Notices of revocation 8.16.150
Coin-operated amusement devices 8.16.020
Contents of application 8.16.040
Definitions 8.16.010
Excluded establishments 8.16.160
Hearing 8.16.070
Penalty for violations 8.16.180
Regulations 8.16.090
Revocation
By neighborhood petition 8.16.110
For violations 8.16.120
Rules, regulations and forms 8.16.130

ART MUSEUM AND ZOOLOGICAL PARK
Authorized Charter Art. XIV-1

ARTS AND HUMANITIES COMMISSION
Assistance to fund-raising efforts 3.57.110
Authority to accept gifts 3.57.120
Budget 3.57.040
Composition 3.57.010
Contractual agreements, authority to recommend 3.57.090
Criteria for evaluation 3.57.100
Executive director 3.57.030
Functions and duties 3.57.060
Lend support, authority to 3.57.070
Meetings 3.57.050
Officers 3.57.020
Review of applications—Endorsement 3.57.080

ASSESSMENT DIVISION
Appeals to Board of Equalization 5.06.100
Architect and practical builder 5.06.070
Assessment districts 5.06.040
Board of Equalization payroll 5.06.080
Chief Deputy Assessor 5.06.050
City block maps or plats 5.06.170
Clerks to act as deputies 5.06.030
Comptroller's duties 5.06.270
Corner influence table 5.06.150
Depth table for lots varying from standard unit foot 5.06.140
Determination of true building value 5.06.250
District Deputy Assessors—Personal property tax assessment differences 5.06.010
Duties, District Deputy Assessor 5.06.060
Employee appointments and bonds 5.06.020
Empowered to modify system, assessor 5.06.280
Field record cards
Contents 5.06.230
Transfer of information 5.06.240
Use 5.06.220
Manual
Building classification—Lot sizes 5.06.180
Corner influence rules 5.06.190
Value explanations 5.06.200
Payroll 5.06.090
Records showing basis of valuation 5.06.120
Standard unit value, uniform 5.06.130
Tax levy annually 5.06.110
To have manuals, field men 5.06.210
Uniform assessment system 5.06.260
Unit value maps 5.06.160

ASSESSOR
Department of finance Charter Art. XV-1 et seq.
See: DEPARTMENT OF FINANCE

ATHLETIC AND SPORTING EVENTS
Bowling alleys 8.100.460
Boxing and wrestling matches
Comptroller to audit accounts 8.100.560
Deposit may be required 8.100.550
Free passes 8.100.580
Gross receipts tax 8.100.540
License
Application 8.100.520
Fee 8.100.510
Prerequisites—Bond 8.100.530
Permit required 8.100.570
Exhibitions
Gross receipts tax 8.100.500
License
Application—Surety 8.100.490
Fee 8.100.480
Required 8.100.470

ATTORNEYS
General provisions
Ordinances
City Counselor to approve form 1.28.030
Law department Charter Art. X-1 et seq.
See: LAW DEPARTMENT

AUCTIONS AND AUCTIONEERS
Auction crier—License
Application 8.18.080
Fee 8.18.100
Issuance—Separate 8.18.090
Required 8.18.070
Cappers and boosters prohibited 8.18.140
Definitions 8.18.010
False statements by auction crier 8.18.130
Inspection of property 8.18.120
Penalties 8.18.160
Public auctioneer—License
Fees 8.18.050
Issuance fee 8.18.060
Prerequisites 8.18.040
Required 8.18.020
Sale of "fill in" articles prohibited 8.18.150
Standard for issuance or revocation of license 8.18.110

— B —

BANKS, BROKERS, INSURANCE AND BONDING COMPANIES
Bonding companies 8.20.080
Definitions 8.20.010
License—Required 8.20.020
Posting license 8.20.050
To whom licenses prohibited 8.20.060

BATHHOUSES
- Applicability of chapter 8.24.180
- Conditions for issuance
  - Establishment license 8.24.080
  - Masseur or masseuse license 8.24.090
- Definitions 8.24.010
- Establishment license—Application
  - Contents 8.24.040
  - Filing fee 8.24.030
- Existing businesses—Substitution for schooling 8.24.160
- Facilities 8.24.120
- Inspection 8.24.140
- Licenses—Revocation 8.24.110
- Masseur or masseuse license
  - Application 8.24.060
  - Filing fee 8.24.050
- Notice of hearing 8.24.070
- Operating regulations 8.24.130
- Penalty for violation 8.24.190
- Required—Establishment license 8.24.020
- Transfer of licenses 8.24.150

BED AND BREAKFAST ESTABLISHMENTS
- Applications—Notices—Hearings 8.25.040
- Contents, Application 8.25.020
- Extension of protested license 8.25.110
- Hearing on protest—Notice—Procedure 8.25.080
- License approval—Generally 8.25.050
- Petitions, protest—Contents—Time for collection of signatures 8.25.070
- Protests
  - Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest 8.25.100
  - Necessity of majority of signatures on petition protesting continuation of license—Effect 8.25.090
- Required—License 8.25.010
- Rules, regulations and requirements 8.25.030
- When and how initiated—Protests against licenses or applications 8.25.060
- Withdrawal of signatures from consent or protest petitions 8.25.120

BELLEFONTAINE FARMS
- Board, room and transportation may be furnished teachers 3.36.265
- Monthly report of superintendent—Statements of receipts and expenses 3.36.260
- Powers and authority of Board of Children's Services 3.36.250
- Superintendent and assistant superintendent, powers and duties of 3.36.255

BENCHES AND SHELTERS
- Appeals 20.51.080
- Application for permit 20.51.030
- Conditions for permit 20.51.040
- Definitions 20.51.010
- Location and placement 20.51.060
- Penalty for violation 20.51.090
- Permit—Required 20.51.020
- Standards for maintenance and installation 20.51.050
- Violations 20.51.070

BICYCLES AND SIMILAR DEVICES
- Carrying articles 17.36.060
- Clinging to vehicles 17.36.040
- Effect of regulations 17.36.010
- Highway, riding on prohibited 17.36.080
- Lamps and other equipment on bicycles 17.36.070
- Reckless riding 17.36.090
- Riding on bicycles 17.36.030
- Traffic laws apply to persons riding bicycles 17.36.020
- Where ridden 17.36.050

BIG BROTHERS BIG SISTERS OF EASTERN MISSOURI FUND
- Deposit 5.92.030
- Excess payment disposition 5.92.020
- The BackStoppers, Inc. Fund and The Big Brothers Big Sisters of Eastern Missouri Fund established 5.92.010
- Use of funds 5.92.040

BILLIARD AND POOL ROOMS
- Approval 8.26.080
- Defined, billiard table keeper 8.26.010
- Hearing 8.26.070
- Premises license
  - Application 8.26.040
  - Required—Definitions 8.26.030
- Regulations 8.26.090
- Renewals 8.26.100
- Revocation
  - By neighborhood petition 8.26.110
  - For violations 8.26.120
- Rules and regulations 8.26.130
- When issuance prohibited—Notice of revocation 8.26.150

BIRTHS, DEATHS AND BURIALS
- Bureau of Vital Statistics 11.62.340 et seq.
  - See: BUREAU OF VITAL STATISTICS
- Burials and crematories
  - Body brought into City, permit and certificate for 11.62.100
  - Health Commissioner may refuse to grant permit 11.62.180

BIRTHS, DEATHS AND BURIALS (Cont'd.)
Burials and crematories (Cont'd.)
Interment order
Compliance required 11.62.050
Noncompliance 11.62.060
Noncompliance 11.62.190
Only registered physicians to sign burial certificates 11.62.120
Permit to accompany body for cremation 11.62.160
Physician's certificate 11.62.110
Police duties
Unauthorized place, when burial is in 11.62.080
When interment delayed 11.62.070
Request for cremation 11.62.170
Required to establish crematory, permit 11.62.140
Without certificate, interment 11.62.130
Cemeteries 11.62.270 et seq.
See: CEMETERIES
Disinterment
Disposition of disinterred bodies 11.62.240
Permit
Required 11.62.210
When authority of Health Commissioner required 11.62.220
Removal of corpses interred at quarantine station 11.62.230
When disinterment required 11.62.250
Morgue 11.62.390 et seq.
See: MORGUE
Moving dead bodies
Certain dead bodies not to be brought to City 11.62.030
Removal without permit 11.62.020

BOARD OF ADJUSTMENT
Zoning 26.84.010 et seq.
See: ZONING

BOARD OF ADULT WELFARE SERVICES
Duties—Reports 3.36.350

BOARD OF ALDERMEN
Absence from meetings Charter Art. IV-4
Adoption of ordinances Charter Art. IV-16
Amendments to be engrossed Charter Art. IV-15
Annual session 3.06.020
Approval or disapproval of ordinances by mayor; reconsideration by board Charter Art. IV-17
Assistant Clerk 3.06.190
Bills to contain single subject; exception Charter Art. IV-13
Board to be judge of qualifications of members; quorum Charter Art. IV-7
Clerk of the Board of Aldermen duties 3.06.180

BOARD OF ALDERMEN (Cont'd.)
Compensation 3.06.090
Competitive Elections Charter Art. IV-34
Composition Charter Art. IV-1
Conflicts of Interest Charter Art. IV-31
Contingency fund
Control—Review 3.06.300
Use 3.06.310
Counsel to the Board
Duties 3.06.290
Qualification 3.06.280
Definitions Charter Art. IV-28
Definitions and rules of construction 1.08.020
Effective date of ordinances Charter Art. IV-19
Emergency ordinance defined Charter Art. IV-20
Enacting style of ordinances Charter Art. IV-10
Entry in journal; how vote determined Charter Art. IV-18
Executive Secretary
Duties 3.06.245
Position created 3.06.240
Expenditures to be pursuant to ordinance; recommendations required Charter Art. IV-25
Fines and imprisonment Charter Art. IV-24
General and special sessions Charter Art. IV-9
General provisions
Ordinances
Proposed board bill with associated costs requiring fiscal note 1.28.090
How committees discharged Charter Art. IV-14
Legislative and administrative powers of board Charter Art. IV-23
Limitations on powers of board Charter Art. IV-26
Office of Legislative Research
Appointment of secretary 3.06.270
Director 3.06.260
Officers 3.06.100
Ordinances to be passed by bill; limitation on amendment Charter Art. IV-11
Outside Employment Charter Art. IV-32
President Charter Art. IV-3
Prohibited Activities Charter Art. IV-33
Qualifications and salary Charter Art. IV-2
Redistricting Charter Art. IV-30
Removal of salaried officers 3.06.120
Resignations 3.06.040
Revision of ordinances Charter Art. IV-22
Revival, amendment and re-enactment of ordinances Charter Art. IV-12
Rules and regulations—Prescribing duties 3.06.110
Rules of procedure; punitive powers; attendance of witnesses; journal; publication of proceedings Charter Art. IV-8

BOARD OF ALDERMEN (Cont'd.)
Secretary of the President of the Board
Appointment 3.06.220
Duties 3.06.230
Sergeant-at-arms 3.06.250
Special sessions 3.06.030
Subpoenas
Authority of Board 3.06.160
Authority of committees
Contempt—Warrant—Penalty 3.06.150
Failure to appear—Issuance of writ of attachment—Fine 3.06.140
Service 3.06.130
The People's Commission Charter Art. IV-29
To be numbered and published, ordinances Charter Art. IV-21
Vacancies Charter Art. IV-5
Filling by general election 3.06.050
Vice-president, clerk and other officers and employees Charter Art. IV-6
Votes of the Board of Aldermen to be published in digital archive 3.06.320

BOARD OF BUILDING APPEALS
Action of Board of Building Appeals 25.05.070
Additional to those in Building Code, powers 25.05.080
Appeal procedure 25.05.020
Hearing of appeals 25.05.050
Inspection reports to be furnished 25.05.040
Judicial review for aggrieved persons 25.05.090
Jurisdiction 25.05.010
Powers of Board of Building Appeals 25.05.060
Stay pending appeal 25.05.030

BOARD OF CHILDREN'S SERVICES
Agent powers and duties 3.36.120
Annual and special reports 3.36.165
Assistant agent 3.36.125
Case supervisors of foster care section and mothers' aid section 3.36.130
Compensation—Expenses 3.36.115
Contracts with private charitable institutions 3.36.160
Created—Members 3.36.100
Expenses for care 3.36.155
Meetings—Attendance 3.36.110
Other employees 3.36.140
Placing children 3.36.150
Receiving and taking charge of children 3.36.145
Selection of officers—Office space 3.36.105
Social case workers 3.36.135

BOARD OF COMMISSIONERS OF THE BRYAN MULLANPHY EMIGRANT AND TRAVELER'S RELIEF FUND
Annual audit 3.36.455

BOARD OF COMMISSIONERS OF THE BRYAN MULLANPHY EMIGRANT AND TRAVELER'S RELIEF FUND (Cont'd.)
Board defined 3.36.405
Conflict of interest—Compensation 3.36.440
Depositories—Securities 3.36.415
Executive director 3.36.435
Meetings 3.36.425
Members—Appointment 3.36.400
Officers 3.36.430
Powers generally 3.36.410
Real estate 3.36.420
Severance 3.36.450
Travelers aid, offices for 3.36.445

BOARD OF EQUALIZATION
Department of finance Charter Art. XV-10

BOARD OF ESTIMATE AND APPORTIONMENT
Annual budget and tax rate Charter Art. XVI-3
Composition; records; secretary Charter Art. XVI-1
Disposition of unappropriated revenue and transfer of appropriated funds Charter Art. XVI-6
Fiscal year Charter Art. XVI-8
How appropriations to be set up Charter Art. XVI-4
Limitations on appropriations Charter Art. XVI-5
Reversion of unexpended appropriations Charter Art. XVI-7
Statements and estimates to be furnished board Charter Art. XVI-2

BOARD OF EXAMINERS OF FUMIGATORS
Created—Composition 11.08.110
Duty before issuance of certificate for license 11.08.130
Rules and regulations 11.08.120

BOARD OF POLICE COMMISSIONERS
Automobile placards for members of the press and attaches of radio stations 3.12.020
City as successor to Board of Police Commissioners 3.12.070
Each disclosure a separate violation 3.12.050
Identification cards for members of the press and attaches of radio stations 3.12.010
Local control and responsibility for the City's Police Department 3.12.005
Memoranda or records of arrest not to be released 3.12.040
Penalty 3.12.060
Unauthorized cards, placards or other emblems 3.12.030

BOARD OF PUBLIC SERVICE
Accounts of city-owned utilities to be segregated Charter Art. XIII-12

BOARD OF PUBLIC SERVICE (Cont'd.)
Bonds 3.26.010
Certification of pay rolls and accounts 3.26.020
Creation and composition Charter Art. XIII-1
Department of public utilities
Powers and duties Charter Art. XIII-10
Water division Charter Art. XIII-11
Designation of deputies Charter Art. XIII-3
Distribution of powers and duties; departmental relations Charter Art. XIII-7
Employment of specialists Charter Art. XIII-8
Fixture or change of rates of public utility corporations 3.26.050
Health and hospitals, department of Charter Art. XIII-14-C
Meetings; quorum; proceedings Charter Art. XIII-4
Organization of departmental divisions Charter Art. XIII-6
Parks, recreation and forestry, department of Charter Art. XIII-14-B
Powers and duties Charter Art. XIII-5
Public safety, department of Charter Art. XIII-15
Qualifications of certain members Charter Art. XIII-2
Secretary
Appointment—Bond 3.26.030
Duties 3.26.040
Streets, department of Charter Art. XIII-13
The president, department of Charter Art. XIII-9
Transportation, department of Charter Art. XIII-13
Welfare, department of Charter Art. XIII-14-A

BOARD OF STANDARDIZATION
Department of finance Charter Art. XV-28

BOARD OF TAX APPEALS
Continuances 8.06.290
Decisions 8.06.260
Hearings 8.06.250
Membership—Terms 8.06.240
Rules and regulations—Subpoena power 8.06.270
Time limit—Decision final 8.06.280

BOARDS, COMMISSIONS AND COMMITTEES
Board of aldermen Charter Art. IV-1 et seq.
See: BOARD OF ALDERMEN
Board of estimate and apportionment Charter Art. XVI-1 et seq.
See: BOARD OF ESTIMATE AND APPORTIONMENT
Board of public service Charter Art. XIII-1 et seq.
See: BOARD OF PUBLIC SERVICE
Civil service Charter Art. XVIII-1 et seq.
See: CIVIL SERVICE
Transitional Provisions. See: SCHEDULE

BOTTLE REGISTRATION
Deposit on bottles 8.28.050
Description—Filing—Publication 8.28.010
Register's book of record 8.28.020
Unlawful uses
Enumerated 8.28.030
Prima facie evidence 8.28.040

BRICK DEALERS
Brick dealer's permit
Application—Issuance 8.28A.030
Required 8.28A.020
Revocation 8.28A.040
Definitions 8.28A.010
Demolition permit requirements 8.28A.060
Penalty for violation 8.28A.100
Photograph of brick seller required 8.28A.050
Purchases from minors—Hours of operation 8.28A.080
Register of transactions required 8.28A.070
Removal and transportation of bricks 8.28A.090

BUDGET
Aldermanic action on budget 5.14.070
Allotment system for control of expenditures 5.14.080
Annual budget required—Preparation 5.14.030
Budget message—Public improvement projects 5.14.050
Contents—Deficits 5.14.040
Director 5.14.010
Disbursements must be lawfully authorized—Liability of officers 5.14.130
Emergency appropriations 5.14.120
Fiscal year 5.14.020
Office of Management Services
Created 5.14.011
Responsible to Budget Director and Administrator 5.14.012
Public record 5.14.060
Reductions, allotment 5.14.090
Supplementary appropriations 5.14.110
Transfer of appropriation balances 5.14.100

BUILDING CODE
Adopted 25.01.010
Amendments 25.01.020
Penalty 25.01.030

BUILDINGS AND CONSTRUCTION
Board of Building Appeals 25.05.010 et seq.
See: BOARD OF BUILDING APPEALS
Building Code 25.01.010 et seq.
See: BUILDING CODE
Building energy awareness
Benchmarking and benchmarking submission required 25.70.030
Definitions 25.70.020

BUILDINGS AND CONSTRUCTION (Cont'd.)
Building energy awareness (Cont'd.)
Maintenance of Records 25.70.050
Purpose and policy 25.70.010
Reporting and Analysis of Benchmarking Information 25.70.040
Rules 25.70.070
Violations and Enforcement 25.70.060
Building energy performance standards
Appeals 25.71.070
Applicability 25.71.030
Building Energy Improvement Board 25.71.060
Definitions 25.71.020
Maintenance of records 25.71.090
Office of building performance—creation and purpose 25.71.050
Purpose and policy 25.71.010
Rules 25.71.080
Standards and compliance 25.71.040
Violations and enforcement 25.71.100
Carbon Monoxide Detectors 25.60.010 et seq.
See: CARBON MONOXIDE DETECTORS
Certificates of use and occupancy
Approval by Community Development Commission 25.48.020
Exceptions 25.48.050
No permit without Community Development Commission approval 25.48.030
Planning law 25.48.070
Procedure for changing standards 25.48.060
Standards for approval 25.48.040
Contractors to post signs
Definitions 25.12.020
Specifications of signs 25.12.010
Demolition, repair, board up or clean up—Costs
Certified—Sent to Comptroller 25.64.010
Constitutes personal debt and property lien 25.64.030
Special tax bill 25.64.020
Electrical Code 25.02.010 et seq.
See: ELECTRICAL CODE
Energy Conservation Code 25.13.010 et seq.
See: ENERGY CONSERVATION CODE
Enforcement of Code violations
Administrative citation 25.33.030
Designated, Hearing Officer 25.33.070
Failure to pay fine 25.33.100
Final decision by Hearing Officer and Authorized Collection Procedures 25.33.110
Fine, administrative citation 25.33.040
Hearing 25.33.080
Notice of violation 25.33.020
Payment of fine 25.33.050

BUILDINGS AND CONSTRUCTION (Cont'd.)
Enforcement of Code violations (Cont'd.)
Request for hearing 25.33.060
Violation of regulatory code provisions unlawful 25.33.010
Written decision 25.33.090
Existing Building Code 25.20.010 et seq.
See: EXISTING BUILDING CODE
Fire, explosion or other casualty—Costs
City not a party to insurance contract 25.66.040
Condemned buildings declared public nuisance 25.66.010
Insurance proceeds 25.66.030
Order—Failure to comply—Special tax bill 25.66.020
Penalty for violation 25.66.050
Flood damage building precautions
Board of Public Service—Determinations 25.16.040
Duties of Director of Public Safety 25.16.060
Implementation of chapter commitments 25.16.070
Land use and control measures—Enactment 25.16.050
Recommendations by Building Commissioner 25.16.020
Requirements for proposed construction 25.16.030
Review of building permit applications 25.16.010
Fuel Gas Code 25.07.010 et seq.
See: FUEL GAS CODE
General provisions
Time
Clocks in public buildings 1.24.040
Housing Conservation Districts 25.56.010 et seq.
See: HOUSING CONSERVATION DISTRICTS
Impacted tenants fund
Definitions 25.78.010
Establishment 25.78.020
Rules for approval of applications for assistance 25.78.030
Information to be given to Building Commissioner
Inspection and copy of records authorized 25.08.040
Names of contractors and subcontractors to be furnished 25.08.010
Noncompliance—Suspension of construction 25.08.020
Stop work order to be in writing—Information contained—Enforcement 25.08.030
International Fire Code 25.06.010 et seq.
See: INTERNATIONAL FIRE CODE
International Property Maintenance 25.32.010 et seq.
See: INTERNATIONAL PROPERTY MAINTENANCE
Mechanical Code 25.03.010 et seq.
See: MECHANICAL CODE

BUILDINGS AND CONSTRUCTION (Cont'd.)
Mold in rental dwelling units
Certificate of inspection—Mold 25.82.050
Definitions 25.82.010
Department of Health to create mold information 25.82.040
Enforcement 25.82.100
Implementation 25.82.110
Mold remediation 25.82.080
Notice to owner of mold presence and remediation 25.82.060
Owner's duty to notify occupants of mold presence and remediation 25.82.070
Owner's responsibility to prevent and remediate mold 25.82.020
Penalties 25.82.120
Reporting and prohibition of retaliatory acts 25.82.090
Tenant's responsibility to prevent and report mold 25.82.030
Occupancy Law
Adoption of Section 137.082, RSMo 25.84.010
Plumbing Code 25.04.010 et seq.
See: PLUMBING CODE
Protective systems
Approval of Board of Public Service required 25.09.010
Permit issuance 25.09.040
Required, structural and safety assessment report 25.09.020
Structural and safety assessment report—Waived when 25.09.030
Repair permit issuance
Permit issuance prohibited when 25.62.010
Residential Code 25.11.010 et seq.
See: RESIDENTIAL CODE
Safe temperature in rentals
Definitions 25.80.010
Enforcement 25.80.030
Penalties 25.80.050
Rental dwelling cooling requirements 25.80.020
Reporting and prohibition of retaliatory acts 25.80.040
Short-term rental ordinance 25.57.010 et seq.
See: SHORT-TERM RENTAL
Small wireless facilities and micro wireless facilities
Definitions 25.76.020
Permits for wireless facilities outside the right-of-way 25.76.030
Title and intent 25.76.010
Smoke detectors 25.52.010 et seq.
See: SMOKE DETECTORS
BUILDINGS AND CONSTRUCTION (Cont'd.)
Smoke Houses 25.36.010 et seq.
See: SMOKE HOUSES
Theatrical Barges 25.40.010 et seq.
See: THEATRICAL BARGES
Trailer Parks 25.44.010 et seq.
See: TRAILER PARKS
Utility coordination
Adoption of standards 25.74.050
Coordination 25.74.020
Definitions 25.74.010
Fees associated with permitting 25.74.060
Moratorium on utility work 25.74.030
Penalties for non-compliance 25.74.070
Responsibility of repair 25.74.040
BUREAU OF FIRE PREVENTION
Established—Under supervision of Chief of Fire Department 3.24.200
Fire Marshal and assistant 3.24.210
Inspections for fire hazards 3.24.260
Manual of instructions 3.24.250
Penalty for violation of Part II 3.24.280
Personnel
Detailed from Fire Department 3.24.220
Qualifications 3.24.230
Powers and duties of Chief of Fire Department and Fire Marshal 3.24.240
Service of order issued for purpose of securing compliance 3.24.270
BUREAU OF VITAL STATISTICS
Depositing fees 11.62.370
Established 11.62.340
Fees 11.62.350
Late birth registrations 11.62.360
BUSINESS LICENSE TAX
Amusement devices and slot machines, coin-operated 8.06.424
Appeals 8.06.230
Based on annual gross commissions, fees, charges or compensation defined 8.06.220
Board of Tax Appeals 8.06.240 et seq.
See: BOARD OF TAX APPEALS
Coin-operated machines 8.06.426
Defined, based on annual gross receipts 8.06.210
Display of license 8.06.140
Doing business without license—False statements 8.06.160
Drummer, solicitor, or canvasser 8.06.452
Fees—Payment
Before issuance of license 8.06.070
Delay 8.06.080

BUSINESS LICENSE TAX (Cont'd.)
Hotels and motels
Additional taxes 8.06.514
Tax—Defined 8.06.512
License
Application 8.06.010
Joint enterprise 8.06.030
Payment of taxes 8.06.020
Separate 8.06.040
Magazine subscription agents and salesmen 8.06.552
Merchants or solicitors, transient 8.06.562
New businesses 8.06.190
Operation of more than one business, occupation or profession from same address 8.06.050
Peddlers 8.06.608
Penalty for delinquent filing 8.06.090
Proration—Fees 8.06.060
Receipts 8.06.110
Records 8.06.130
Sworn statement
Not to be made public 8.06.180
Right to verify 8.06.170
Tax example—License required 8.06.300
Time extension 8.06.100
Treasurer to receive money and copies of receipts 8.06.120
Two dollars per one thousand dollars defined 8.06.200
Vending machines, coin-operated 8.06.428
Where no fee specified, fee 8.06.150

BUSINESS TAXES, LICENSES AND REGULATIONS
Alarm system businesses 8.13.010 et seq.
See: ALARM SYSTEM BUSINESSES
Ambulances 8.14.010 et seq.
See: AMBULANCES
Arcades 8.16.010 et seq.
See: ARCADES
Banks, brokers, insurance and bonding companies 8.20.010 et seq.
See: BANKS, BROKERS, INSURANCE AND BONDING COMPANIES
Bathhouses 8.24.010 et seq.
See: BATHHOUSES
Bed and breakfast establishments 8.25.010 et seq.
See: BED AND BREAKFAST ESTABLISHMENTS
Billiard and pool rooms 8.26.010 et seq.
See: BILLIARD AND POOL ROOMS
Bottle registration 8.28.010 et seq.
See: BOTTLE REGISTRATION
Brick dealers 8.28A.010 et seq.
See: BRICK DEALERS

BUSINESS TAXES, LICENSES AND REGULATIONS (Cont'd.)
Business License Tax 8.06.010 et seq.
See: BUSINESS LICENSE TAX
Cable television 8.29.010 et seq.
See: CABLE TELEVISION
Cigarette Occupation Tax 8.10.010 et seq.
See: CIGARETTE OCCUPATION TAX
Commission merchants and merchandise brokers
Hay and grain commission merchant defined 8.30.010
Publication of chapter 8.30.030
Contractors 8.12.010 et seq.
See: CONTRACTORS
Criminal history of applicants
Implementation and enforcement 8.120.020
Penalties 8.120.030
Prohibited practices 8.120.010
Dance halls 8.32.010 et seq.
See: DANCE HALLS
Dance studios 8.34.010 et seq.
See: DANCE STUDIOS
Detective agencies 8.36.010 et seq.
See: DETECTIVE AGENCIES
Domestic partnerships 8.37.010 et seq.
See: DOMESTIC PARTNERSHIPS
Embalmers
Permit—Expiration 8.38.020
Transporting bodies from unlicensed embalmers 8.38.030
Employment agencies 8.40.010 et seq.
See: EMPLOYMENT AGENCIES
Entertainment License Tax 8.08.010 et seq.
See: ENTERTAINMENT LICENSE TAX
Firearms manufacture 8.41.010 et seq.
See: FIREARMS MANUFACTURE
General penalty
Violation by organization—Action taken by court 1.12.070
Graduated Business License Tax 8.07.010 et seq.
See: GRADUATED BUSINESS LICENSE TAX
Horse-drawn vehicles 8.43.010 et seq.
See: HORSE-DRAWN VEHICLES
Information Date Bureaus 8.44.010 et seq.
See: INFORMATION DATE BUREAUS
Insurance adjustors 8.46.010 et seq.
See: INSURANCE ADJUSTORS
Junkyards 8.50.010 et seq.
See: JUNKYARDS
Laundries and dry cleaning 8.52.010 et seq.
See: LAUNDRIES AND DRY CLEANING
Licenses
Appeal 8.02.075

BUSINESS TAXES, LICENSES AND REGULATIONS (Cont'd.)
Licenses (Cont'd.)
Definitions 8.02.100
Extension of time—Failure to take out license 8.02.180
Failure to take out license 8.02.170
Form—License 8.02.130
Inquiry into applicant 8.02.150
License Collector
Employee bonds 8.02.090
Office 8.02.080
Nontransferable—License 8.02.140
Not refundable, license tax 8.02.074
Police duties 8.02.110
Refusal or revocation—Notification 8.02.073
Repealed 8.02.160
Statement of clearance
Bond 8.02.030
Form 8.02.060
Issuance 8.02.020
License, issuance of 8.02.040
Penalty for violation 8.02.070
Required 8.02.010
Unlawful issuance 8.02.050
Unsatisfied final judgments
Issuance of license 8.02.071
Revocation of license 8.02.072
Violations 8.02.120
Location and operation of certain businesses
Penalty for violation of Section 8.116.030 8.116.040
Permission required 8.116.010
Restricted, locations 8.116.030
Stables 8.116.020
Manufacturers 8.54.010 et seq.
See: MANUFACTURERS
Massage therapists and massage facilities 8.55.010 et seq.
See: MASSAGE THERAPISTS AND MASSAGE FACILITIES
Merchants and Manufacturers Tax Equalization Board 8.04.010 et seq.
See: MERCHANTS AND MANUFACTURERS TAX EQUALIZATION BOARD
Merchants 8.56.010 et seq.
See: MERCHANTS
Miniature pony tracks 8.58.010 et seq.
See: MINIATURE PONY TRACKS
Mining 8.60.010 et seq.
See: MINING

BUSINESS TAXES, LICENSES AND REGULATIONS (Cont'd.)
Minority and Women-Owned Business Enterprise Program 8.118.010 et seq.
See: MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE PROGRAM
Miscellaneous vocations
Checkroom
License
Penalty for failure to obtain 8.114.080
Required 8.114.060
Receipt records 8.114.090
Definitions 8.114.010
Licenses
Required 8.114.020
Subject to ordinances 8.114.050
Terms 8.114.040
Tailors 8.114.100
Motor buses 8.62.010 et seq.
See: MOTOR BUSES
Motor carrier transportation brokers 8.64.010 et seq.
See: MOTOR CARRIER TRANSPORTATION BROKERS
Motor fuel dealers 8.66.010 et seq.
See: MOTOR FUEL DEALERS
Parking stations 8.70.010
See: PARKING STATIONS
Pawnbrokers 8.72.010 et seq.
See: PAWNBROKERS
Photographers 8.74.010 et seq.
See: PHOTOGRAPHERS
Plumbers 8.75.010 et seq.
See: PLUMBERS
Private security personnel 8.75A.010 et seq.
See: PRIVATE SECURITY PERSONNEL
Public garages 8.76.010 et seq.
See: PUBLIC GARAGES
Public photographic studios 8.78.010 et seq.
See: PUBLIC PHOTOGRAPHIC STUDIOS
Real estate agents and brokers 8.80.010 et seq.
See: REAL ESTATE AGENTS AND BROKERS
Secondhand and junk dealers 8.82.010 et seq.
See: SECONDHAND AND JUNK DEALERS
Service stations 8.83.010 et seq.
See: SERVICE STATIONS
Short-Term Lending Code 8.83A.010 et seq.
See: SHORT-TERM LENDING CODE
Solicitations 8.84.010 et seq.
See: SOLICITATIONS
Solid fuel 8.86.010 et seq.
See: SOLID FUEL
Steam 8.88.010 et seq.
See: STEAM

BUSINESS TAXES, LICENSES AND REGULATIONS (Cont'd.)
Stockyards, sales stables and cattle dealers 8.90.010 et seq.
See: STOCKYARDS, SALES STABLES AND CATTLE DEALERS
Street railways 8.92.010 et seq.
See: STREET RAILWAYS
Surveyors 8.96.010 et seq.
See: SURVEYORS
Tattoo parlors 8.97.010 et seq.
See: TATTOO PARLORS
Taxicabs and service cars 8.98.010 et seq.
See: TAXICABS AND SERVICE CARS
Theaters, shows and other public amusements 8.100.010 et seq.
See: THEATERS, SHOWS AND OTHER PUBLIC AMUSEMENTS
Ticket brokers 8.102.010 et seq.
See: TICKET BROKERS
Towel supply companies 8.104.010 et seq.
See: TOWEL SUPPLY COMPANIES
Undertakers 8.106.010 et seq.
See: UNDERTAKERS
Vault cleaners 8.108.010 et seq.
See: VAULT CLEANERS
Vendors at fairs and festivals 8.109.010 et seq.
See: VENDORS
Vendors 8.108A.010 et seq.
See: VENDORS
Wreckers 8.110.010 et seq.
See: WRECKERS

BUSINESSES AND BUSINESS REGULATIONS
Franchises Charter Art. XIX-2 et seq.
See: FRANCHISES

— C —

CABLE TELEVISION
Acceptance and term of franchise 8.29.080
Amendment of franchises 8.29.100
Application procedures 8.29.030
Are cumulative, rights and remedies 8.29.300
Broadband internet access
Access to content generally 8.29C.020
Compliance with applicable law 8.29C.060
Definitions 8.29C.010
Modification by state or federal law 8.29C.080
Nondiscriminatory offering of internet services 8.29C.050
Rules of construction 8.29C.070
Specific types of content, access to 8.29C.030
Support for internet protocols 8.29C.040

CABLE TELEVISION (Cont'd.)
Channel capacity and system requirements 8.29.120
Conditions and limitations of franchise 8.29.110
Construction 8.29.180
Continued use of individual antennas protected 8.29.230
Definitions and rules of construction 8.29.010
Delegation of powers 8.29.310
Discriminatory practices prohibited 8.29.250
Fines 8.29.290
Franchise, cable television
Administration, enforcement and penalties 8.29A.210
Applicability 8.29A.030
Appointments for service or installation 8.29A.060
Billings, charges and credits 8.29A.140
Changes in services and rates 8.29A.120
Definitions 8.29A.020
Deposits, advance payments, refunds and credits 8.29A.150
Disconnections and downgrades
Involuntary 8.29A.090
Voluntary 8.29A.100
Exclusive contracts 8.29A.200
Exhibit A 8.29A.240
Findings 8.29A.010
General customer service practices 8.29A.040
Installations and reconnections 8.29A.070
Mobility-limited subscribers 8.29A.180
Notices—Written and oral 8.29A.130
Outages 8.29A.110
Parental control 8.29A.190
Privacy 8.29A.170
Reports and documentation 8.29A.160
Service and repair calls 8.29A.080
Severability 8.29A.220
Telephones, business offices and support services 8.29A.050
Waiver of requirements 8.29A.230
Grantee may promulgate rules 8.29.240
Job skills and training 8.29.210
Liability and indemnification 8.29.260
Minority and women participation, training 8.29.200
Open video systems 8.29.340
Other business activities 8.29.220
Payments to the City 8.29.070
PEG access requirements 8.29.140
Performance bond 8.29.270
Procedures for ordinances granting or renewing franchises 8.29.050
Rates charged to subscribers 8.29.190
Renewal procedure 8.29.040
Required, franchise 8.29.020

CABLE TELEVISION (Cont'd.)
Resolution of complaints 8.29.320
Right of City to intervene 8.29.280
Safety requirements 8.29.160
St. Louis Tele-Communications—Cable television franchise renewal
Acceptance 8.29B.160
Amendment of franchise 8.29B.150
City's right of intervention 8.29B.140
Conflict of provisions 8.29B.220
Construction of provisions generally 8.29B.190
Definitions and rules of construction 8.29B.010
Facilities and equipment—Access requirements 8.29B.070
Force majeure 8.29B.230
Franchise conditions and limitations 8.29B.040
Grant of franchise; effective date 8.29B.020
Grantee may promulgate rules 8.29B.170
Integration 8.29B.240
Interconnection 8.29B.080
Notices 8.29B.180
Obscenity provisions 8.29B.210
Payments to the City 8.29B.100
Performance bond, letter of credit, and insurance 8.29B.110
Reports and records 8.29B.130
Revocation and default provisions and remedies 8.29B.120
Schedule and conditions, construction 8.29B.050
Severability 8.29B.200
Support of minorities and women 8.29B.090
System performance 8.29B.060
Term of franchise 8.29B.030
Street occupancy, conditions on 8.29.170
Tampering and theft of service 8.29.330
Technical requirements and channel capacity 8.29.150
Termination of franchise 8.29.090
Transfer 8.29.060
Two-way capacity and addressability 8.29.130

CAPITAL FUND
Capital Committee 5.35.040
Citizens Advisory Committee for Capital Expenditures 5.35.030
Committees 5.35.020
Established 5.35.010

CARBON MONOXIDE DETECTORS
Compliance—Rules and regulations 25.60.040
Definitions 25.60.010
Maintenance 25.60.060
Penalty for violation 25.60.070
Required
Multiple-family residential buildings 25.60.030

CARBON MONOXIDE DETECTORS (Cont'd.)
Required (Cont'd.)
Single-family residential buildings 25.60.020
Unlawful to make detector inoperable 25.60.050

CASH MATCH ALLEY IMPROVEMENT PROGRAM
Definitions 20.18.180
Established—Exceptions 20.18.170
Procedure to determine participation in cash match program 20.18.190

CATCHLINES
Definitions and rules of construction 1.08.030

CEMETERIES
Burial in unauthorized places 11.62.290
Depth for burying 11.62.300
Destroying or disfiguring 11.62.320
Legal cemeteries named 11.62.280
Permit required 11.62.270
Sexton 11.62.310

CHARITY SOLICITATIONS COMMISSION
Executive Secretary 3.60.030
Membership—Terms 3.60.010
Organization—Powers and duties generally 3.60.020

CHARTER
Definitions and rules of construction 1.08.040
See specific subject

CIGARETTE OCCUPATION TAX
Affixing stamps 8.10.090
Bond 8.10.170
Counterfeit stamps 8.10.080
Dealers outside City 8.10.180
Definitions 8.10.010
Denominations—Tax meter stamps 8.10.110
Enforcement 8.10.020
Intent 8.10.030
Oaths and subpoenas 8.10.150
Packages without stamps on premises 8.10.100
Payment—Discount 8.10.060
Penalty for violation 8.10.160
Refunds 8.10.130
Required, stamps 8.10.040
Rules and regulations—Records 8.10.120
Seizure of unstamped packages 8.10.140
Stamps are evidence of payment 8.10.070
Tax levy 8.10.050

CIRCUIT ATTORNEY
Commencement of additional duties and compensation 3.17.030
Compensation 3.17.020

CIRCUIT ATTORNEY (Cont'd.)
Empowered to perform additional duties, Circuit Attorney 3.17.010

CITY
Definitions and rules of construction 1.08.050
Incorporation Charter Art. I-1 et seq.
See: INCORPORATION

CITY BONDS
Administration of sinking funds Charter Art. XVII-6
Annual tax levy; sinking fund Charter Art. XVII-4
Elections authorizing issues Charter Art. XVII-3
How payment to be made Charter Art. XVII-2
Payment of "St. Louis Water Bonds." Charter Art. XVII-5
Purposes for which bonds may be issued Charter Art. XVII-1
Warrants for payment of bonded indebtedness Charter Art. XVII-7

CITY COUNSELOR
Bond 3.10.030
Duties 3.10.040
General provisions
Ordinances
City Counselor to approve form 1.28.030
Head of Law Department—Appointment of subordinates—Powers and duties generally 3.10.020
Law department Charter Art. X-1 et seq.
See: LAW DEPARTMENT

CITY COURTS
Accounts for costs 3.08.320
Acting judges 3.08.020
Additional court cost
Certain municipal ordinance violation cases 3.08.385
Municipal ordinance violations 3.08.390
Provisions re 3.08.392
Violation of City ordinance or any criminal or traffic laws of the state 3.08.410
Affidavit upon part of City to be made by City Counselor 3.08.290
Amount of costs 3.08.240
Analysis of cases—Report to Mayor 3.08.150
Clerk of the City Courts 3.08.160 et seq.
See: CLERK OF THE CITY COURTS
Collateral security until appeal is perfected 3.08.300
Collection—Disbursement 3.08.395
Continuances 3.08.140
Convicted and sentenced prisoners 3.08.350
Court costs
Additional surcharge 3.08.380
Surcharge
Fund 3.08.375

CITY COURTS (Cont'd.)
Court costs (Cont'd.)
Surcharge (Cont'd.)
Provisions re 3.08.370
Deposit to cover cost upon change of venue 3.08.250
Division of case load 3.08.010
Failure to appear 3.08.420
General penalty 1.12.050 et seq.
See: GENERAL PENALTY
Guilty pleas to be heard first 3.08.060
Janitors 3.08.360
Judges 3.08.070 et seq.
See: JUDGES
Jurisdiction Charter Art. XII-3
Proceedings are civil actions 3.08.040
Jurors fee 3.08.230
Jury trial
Deposit 3.08.200
Request—Selection—Verdict 3.08.190
Marshal
Daily report 3.08.340
Duty to bring persons in custody before court 3.08.330
Officers to attend as witnesses 3.08.260
Penalty when guilty 3.08.220
Place of holding court 3.08.030
Powers of board of aldermen; substitute judges; places of holding court Charter Art. XII-2
Processes and notices on City to be served on City Counselor 3.08.280
Prosecution on complaint without filing an information 3.08.130
Records open to inspection—Destruction of records 3.08.185
Rules of practice and procedure
Amendment by ordinance 3.08.120
Judges to establish 3.08.100
Publication—Filing 3.08.110
Sessions and holidays 3.08.050
Surcharge for state court automation 3.08.394
Swearing of jurors 3.08.210
Waiver of fee 3.08.400
Warrants issued by municipal judges 3.08.095
When complainant or informant required to deposit costs 3.08.310
Witness fee payment—Certificate of amount 3.08.270

CITY EMERGENCY MANAGEMENT AGENCY
Agency established 3.40.020
Definitions 3.40.010
Director—Duties and responsibilities 3.40.040
Help from other sources 3.40.090

CITY EMERGENCY MANAGEMENT AGENCY (Cont'd.)
Mayor's powers
Enemy-caused emergency 3.40.060
Prior to emergency 3.40.050
Natural or man-made emergencies, Director's duties in 3.40.070
Nonliability of City and workers 3.40.080
Oath of office 3.40.100
Office expenditures 3.40.030
Penalty for violation 3.40.110

CITY EMPLOYEES RETIREMENT SYSTEM
Actuary 4.16.120
Board of Trustees 4.16.110
Contributions, member 4.16.070
Creditable service 4.16.030
Death benefits 4.16.050
Deferred retirement option program 4.16.090
Definitions 4.16.010
Employer contributions 4.16.080
Fund 4.16.100
General distribution rules 4.16.060
Membership 4.16.020
Miscellaneous 4.16.130
Retirement 4.16.040

CITY HALL
Public buildings and property 3.56.010 et seq.
See: PUBLIC BUILDINGS AND PROPERTY

CITY JAIL
Board fee 16.12.030
Definitions 16.12.050
Penalty for violation 16.12.070
Permitted accessors to city detention facilities 16.12.060
Title 16.12.040
Warden—Appointment 16.12.010

CITY JOURNAL
City Register duties 3.52.040
Contents
Required 3.52.020
Restricted 3.52.030
Contract for printing
Awarded by bids 3.52.050
Copies 3.52.080
Proceedings of Board of Aldermen and Board of Public Service 3.52.070
Time—Bond—Forfeiture 3.52.060
Distribution of copies and charges for City Journal 3.52.090
Expenditures and payments 3.52.130
Journal to be bound—Prima facie evidence 3.52.100
Official designation—Issuance 3.52.010

CITY JOURNAL (Cont'd.)
Preparation of material for publication 3.52.110
Register authorized to revise matter submitted 3.52.120

CITY MARKETS
By Board of Public Service, designation 11.44.010
Cleaning market buildings and market places 11.44.170
Depositing refuse, paper or offal in market place 11.44.240
Designations 11.44.040
Dogs or unruly or dangerous animals 11.44.220
Employees, Union Market 11.44.290
Exhibition of articles means offer for sale 11.44.230
Financial matters 11.44.120
Forfeiture of tenancy
Failure to use stall 11.44.260
Violations 11.44.270
Hours 11.44.310
Location of wagon, auto and market stands 11.44.200
Management 11.44.100
Marketmasters
Duties 11.44.130
Police powers 11.44.150
Powers 11.44.140
Operation of stand without permit or license 11.44.060
Produce quality 11.44.180
Removal of vehicles after sale of produce 11.44.210
Renting or leasing
Other space 11.44.330
Stands and stalls 11.44.320
Rules and regulations generally 11.44.110
Sales reports 11.44.190
Scales and other implements for weighing 11.44.160
Soulard Market, management of 11.44.105
Soulard, Biddle and South Markets, employees of 11.44.300
South Broadway Market
Established 11.44.020
Permit and license required 11.44.030
Transfer of occupation 11.44.250
Union Market garage
Employees 11.44.340
Rates 11.44.350
Use by farmers only 11.44.050

CITY MARSHAL
Abolition of office Charter Art. XI-2
Accounts—Daily statements—Payments 3.14.020
Bond 3.14.010
Deadly weapons—Disposal
Absence of permit 3.14.080
Unclaimed 3.14.070
Deputies
Appointment 3.14.030

CITY MARSHAL (Cont'd.)
Deputies (Cont'd.)
Powers 3.14.040
Salary; duties; deputies Charter Art. XI-1
Sale of certain property
Authorized 3.14.050
Proceeds 3.14.060

CITY SEAL
General provisions
Provisions re
Description—Validity 1.16.010

CITY VEHICLES
Duty of officers as to marking 3.54.020
Maintenance rate 3.54.030
Markings 3.54.010
Municipal garage—Superintendent 3.54.040
Penalty for violation 3.54.120
Qualifications of superintendent 3.54.050
Rules for use of vehicles 3.54.060
Sheriff and deputy cars
Exempt from parking meter fees 3.54.100
May be parked on any street 3.54.080
Placards 3.54.090
Restrictions on parking 3.54.110

CITY WORKHOUSE
Access to menstrual products 16.16.360
Accounts 16.16.160
Appointment of warden and subordinates 16.16.020
Articles received and sent, record of 16.16.330
Clothing, prisoner 16.16.320
Credits for satisfactory work and good behavior 16.16.210
Diets 16.16.260
Direction of felons to work assignment 16.16.215
Discharge 16.16.220
Discipline 16.16.170
Duties of warden 16.16.030
Effects of prisoners 16.16.110
Employment of prisoners 16.16.120
Escapes
Notice 16.16.180
Penalty 16.16.190
Executions 16.16.100
Food for guards and employees 16.16.090
Forfeitures and credits of prisoners 16.16.200
Hospital, when prisoners removed to 16.16.270
Location 16.16.010
Meals 16.16.080
Monthly requisitions for supplies 16.16.070
Precautions against escape—Arrest of escapees 16.16.300

CITY WORKHOUSE (Cont'd.)
Pregnant inmates 16.16.350
Prisoner interviews 16.16.230
Record of prisoners 16.16.040
Release of working felons—Completion of three-fourths of sentence required 16.16.217
Sale of brooms and brushes made in penal institution
Penalty for violation 16.16.140
Prohibited 16.16.130
Separate apartments 16.16.240
Sick prisoners 16.16.250
Termination of confinement 16.16.060
Trespassing on workhouse premises—Assisting escapes 16.16.310
Use of brooms and brushes 16.16.150
Venereal diseases 16.16.280
Warden to report to Aldermen 16.16.290
When prisoners to be used for loading 16.16.340
Work, account of 16.16.050

CIVIL RIGHTS ENFORCEMENT AGENCY
Administrative proceedings subsequent to issuance of charges 3.44.100
Agency action—Preliminary matters 3.44.090
Composition of the Commission 3.44.030
Construction of this chapter 3.44.160
Creation and establishment of the Civil Rights Enforcement Commission and Civil Rights Enforcement Agency 3.44.020
Definition of terms 3.44.010
Enforcement of Commission orders 3.44.120
Executive Director, powers and duties of the 3.44.070
Function and duties of the Commission 3.44.040
Judicial review 3.44.110
Organization 3.44.050
Penalty 3.44.150
Powers and duties of the Commission 3.44.060
Prohibited discriminatory practices 3.44.080
Representation of complainant where election is made pursuant to RSMo 213.076.1 3.44.130
Savings clause 3.44.140

CIVIL SERVICE
"Person" or "persons.", construction of words Charter Art. XVIII-16
Abutting property of establishment of boulevards and parkways, effect on; power of city Charter Art. XVIII-11
Acceleration, right of; interest on judgment Charter Art. XVIII-6
Acquisition of private sewers by city Charter Art. XVIII-17
Additional provisions authorized Charter Art. XVIII-12

CIVIL SERVICE (Cont'd.)
Aid of state law, ordinances in Charter Art. XVIII-17
Alleys Charter Art. XVIII-11
Amendment of assessment and tax bills Charter Art. XVIII-11
Amount of damages, when assessment for benefits to equal Charter Art. XVIII-13
Appeals by city in judicial proceedings Charter Art. XVIII-8
Application of amendment to prior proceedings Charter Art. XVIII-20
Appointment, duties, commissioners Charter Art. XVIII-3
Appropriation of fund for payment as work progresses Charter Art. XVIII-4
Approval of official bonds; faithful performance required Charter Art. XVIII-4
Assessments where property exempt, city to pay Charter Art. XVIII-9
Assignment and change of place of payment Charter Art. XVIII-7
Boards and officers, city marshal to execute process for Charter Art. XVIII-13
Branch establishments, tax on Charter Art. XVIII-2
Changes in administrative provisions Charter Art. XVIII-1
City surveyors Charter Art. XVIII-11
Civil service commission Charter Art. XVIII-6
Classified employees, political activity of Charter Art. XVIII-19
Commission powers and duties Charter Art. XVIII-7
Complaints as to execution of contract Charter Art. XVIII-7
Compliance with article and civil service rules Charter Art. XVIII-23
Conditions of grant or renewal Charter Art. XVIII-3
Construction, repair and maintenance of private sewers Charter Art. XVIII-20
Contents; authorization for subsequent appropriations—Ordinance Charter Art. XVIII-2
Contracts for sewers to contain provisions for connections Charter Art. XVIII-6
Control of public utilities Charter Art. XVIII-2
Cost of litigation, compensation of commissioners Charter Art. XVIII-9
Definitions Charter Art. XVIII-1
Department of personnel Charter Art. XVIII-5
Determination of damages; liability of benefited property Charter Art. XVIII-4
Director of personnel—Appointment; qualifications; compensation Charter Art. XVIII-8
Division of assessment against joint owners Charter Art. XVIII

CIVIL SERVICE (Cont'd.)
Effect of established titles and rates of pay Charter Art. XVIII-26
Effective date Charter Art. XVIII-30
Efficiency board vested in personnel board, powers and duties of Charter Art. XVIII-29
Entry of judgment; payment of damages; collection where city fails to pay Charter Art. XVIII-8
Establishment of benefit, taxing and sewer districts, etc. Charter Art. XVIII-3
Evidence of liability, effect as Charter Art. XVIII-4
Examinations for licenses Charter Art. XVIII-14
Exceptions, review by court Charter Art. XVIII-7
Execution of city's contracts Charter Art. XVIII-9
False statements under oath Charter Art. XVIII-21
Fire department Charter Art. XVIII-31
Form of contracts Charter Art. XVIII-5
General revenue, appropriations for payment from Charter Art. XVIII-2
How contracts to be let Charter Art. XVIII-4
In general—How cost of work or improvement levied and assessed Charter Art. XVIII-10
Information to be filed by board of public service Charter Art. XVIII-1-A
Initiation of proceedings Charter Art. XVIII-1
Installments authorized; maturity Charter Art. XVIII-2
Insufficient and excessive assessments Charter Art. XVIII-23
Investigatory powers of director; payment of witnesses Charter Art. XVIII-25
Issuance; source of payment; provisions to be supplied by ordinance Charter Art. XVIII-1
Leave to be granted for purpose of voting Charter Art. XVIII-20
Legal remedies for payment of unauthorized compensation Charter Art. XVIII-24
Levy and assessment of special tax for sewers Charter Art. XVIII-16
Liability of officers and sureties for payment of unauthorized compensation Charter Art. XVIII-13
Lien; priority; legal remedies for collection Charter Art. XVIII-5
Limitation on subsequent action where proceedings dismissed Charter Art. XVIII-10
Local improvement fund authorized Charter Art. XVIII-3
Location and connection of sewers Charter Art. XVIII-15
Maintenance of streets by street railroads Charter Art. XVIII-4
Maximum work day and minimum wage for mechanics and laborers Charter Art. XVIII-14
Mayor's contingent fund Charter Art. XVIII-6

CIVIL SERVICE (Cont'd.)
New assessment to be made and tax bills issued where original assessment invalid Charter Art. XVIII-10
Offices and facilities to be provided; unauthorized compensation Charter Art. XVIII-11
Official bond, when additional required Charter Art. XVIII-5
Open to mayor, comptroller and board of aldermen, city records to be Charter Art. XVIII-10
Ordinances to be enacted Charter Art. XVIII-4
Partial invalidity of provisions Charter Art. XVIII-27
Payment of benefits in installments; issuance of anticipation bonds Charter Art. XVIII-17
Penalties for violation Charter Art. XVIII-22
Planting shade trees and removal of snow, ice, rubbish and weeds, assessments for Charter Art. XVIII-3
Political assessments and contributions Charter Art. XVIII-17
Preparation, certification and delivery Charter Art. XVIII-1
Private property in excess of actual requirements, appropriation of Charter Art. XVIII-16
Procedure in condemnations for miscellaneous purposes Charter Art. XVIII-12
Promises of official influence to affect political action Charter Art. XVIII-18
Property to be viewed; establishment of benefit or taxing district; publication of boundaries; report of assessment Charter Art. XVIII-5
Provisions of this article, special tax bills issued under Charter Art. XVIII-5
Public improvements by individuals—Permit required Charter Art. XVIII-21
Purpose and basic requirements of this article Charter Art. XVIII-2
Racial, political and religious discrimination forbidden Charter Art. XVIII-16
Ratifying irregularities, ordinance Charter Art. XVIII-9
Receipt of payments by collector; bills to be marked satisfied; expiration of lien Charter Art. XVIII-8
Recommendations required—Ordinance initiating public works Charter Art. XVIII-1
Reconstruction or alteration of district and joint-district sewers Charter Art. XVIII-19
Removal from office; director's powers and duties generally Charter Art. XVIII-9
Repeal of inconsistent provisions Charter Art. XVIII-28
Rights of city upon payment of damages into court Charter Art. XVIII-6
Sale of unpaid judgments for benefit assessments Charter Art. XVIII-18
Scope of civil service rules Charter Art. XVIII-3

CIVIL SERVICE (Cont'd.)
Selection of examiners and assistants; qualifications of employees Charter Art. XVIII-10
Separate contracts for grading and improvement Charter Art. XVIII-8
Service of notice of issuance; return Charter Art. XVIII-3
Sewers, classification of Charter Art. XVIII-14
Sidewalks Charter Art. XVIII-12
Special tax bills to be issued on completion of work Charter Art. XVIII-18
Status of persons employed by city when article takes effect Charter Art. XVIII-12
Subjects of taxation Charter Art. XVIII-1
Summons, issuance and service of Charter Art. XVIII-2
Taxation of raw materials and finished products, tools and machinery, and sales Charter Art. XVIII-2
Title "board of election commissioners.", construction of Charter Art. XVIII-7
To be borne by city, when reconstruction costs Charter Art. XVIII-13
Uniform tax for each class Charter Art. XVIII-3
Unlawful conduct relating to examinations Charter Art. XVIII-15
Use of tracks of one street railroad by another Charter Art. XVIII-5
Utilization by city of material put into improvement Charter Art. XVIII-22
Vacation of streets, etc.; acquisition of property by private purchase Charter Art. XVIII-14
When assessments may be paid in installments; issuance of bonds in anticipation of unpaid installments Charter Art. XVIII-15
Where city's notices, etc., published Charter Art. XVIII-12
Word "office.", construction of Charter Art. XVIII-15

CIVIL SERVICE COMMISSION
Civil service Charter Art. XVIII-1 et seq.
See: CIVIL SERVICE

CLASSES, CLASSIFICATION
General penalty
Classification of offenses 1.12.030

CLASSIFIED SERVICE PLAN
Alphabetical list of classes 4.10.010
Certification of payroll 4.10.130
Changes to classification plan 4.10.110
Conversion 4.10.090
Death benefit 4.10.230
Deferred compensation 4.10.260
Education reimbursement 4.10.030
Holidays 4.10.160

CLASSIFIED SERVICE PLAN (Cont'd.)
Income sources 4.10.080
Insurance benefits 4.10.220
Jury and witness leave 4.10.250
Leaves of absence and family/medical leave 4.10.210
Medical leave 4.10.190
Military leave 4.10.200
Minimum work hours 4.10.140
Official pay schedule for classification grades 4.10.020
Overtime 4.10.150
Payment of salaries 4.10.100
Payroll forms 4.10.120
Police Division 4.10.280
Promotion, demotion, reallocation, transfer and temporary promotion 4.10.060
Retirement 4.10.270
Salary adjustment 4.10.070
Salary range limitations 4.10.040
Sick leave 4.10.180
Starting salary 4.10.050
Vacation 4.10.170
Workers' compensation and disability leave 4.10.240

CLEAN ENERGY DEVELOPMENT BOARD
Actions in accordance with the PACE Act 3.120.050
Authority of the Clean Energy Development Board 3.120.030
Creation of a Clean Energy Development Board 3.120.020
Findings and determinations 3.120.010
Further authority 3.120.060
Terms of board members 3.120.040

CLERK OF THE CITY COURTS
Appointment—Term—Oath—Bond 3.08.160
Clerk Charter Art. XII-4
Deputies 3.08.170
Duties 3.08.180

CODES
Definitions and rules of construction 1.08.060
General provisions 1.04.010 et seq.
See: GENERAL PROVISIONS

COLLECTION DIVISION
Collector's duties—Daily deposits—Receipts 5.08.010
Compensation 5.08.070
Daily receipt books 5.08.020
Delinquent real estate taxes, collection of 5.08.040
Deputies—Collector's responsibilities 5.08.030
Special tax bills, collection of—Board of Public Service recommendation 5.08.060
Water bills, collection of—Filing of reports 5.08.050

COLLECTOR
Department of finance Charter Art. XV-1 et seq.
See: DEPARTMENT OF FINANCE

COMMISSIONER OF CHILDREN'S SERVICES
Duties 3.36.050

COMMUNICABLE DISEASE
Conditions defined 11.56.180
Diphtheria—Termination cultures 11.56.470
Diseases and conditions, reportable 11.56.190
Duties of police 11.56.420
Exposure to communicable disease by school official, reporting of 11.56.360
Notice to Health Commissioner when sick patient leaves physician's care 11.56.270
Placarding premises—Determination of necessity 11.56.250
Premises
Disinfection order 11.56.380
Vacation and disinfection—Travel restrictions 11.56.370
Public not to be endangered by persons sick with communicable disease 11.56.400
Removal of persons to hospital
Communicable disease 11.56.320
Filthy conditions 11.56.330
Report
Blanks 11.56.200
Physicians and laboratories 11.56.210
School attendance 11.56.340
Termination
Order 11.56.290
Required before removal of placard or household goods 11.56.310
Typhoid fever 11.56.300
Tuberculosis 11.56.480 et seq.
See: TUBERCULOSIS
When Health Commissioner may close business places 11.56.410

COMMUNITY DEVELOPMENT ADMINISTRATION
Current programs—Community Development Administration 3.47.030
Director—Community Development Administration 3.47.050
Division of Residential Development 3.47.090
Duties—Community Development Administration 3.47.020
Established—Community Development Administration 3.47.010
Fiscal Manager and Office 3.47.070
Monitoring Manager and Office 3.47.060

COMMUNITY DEVELOPMENT ADMINISTRATION (Cont'd.)
Reports—Community Development Administration 3.47.040
Special Programs Manager and Office 3.47.080

COMMUNITY MEDIATION
Annual report 3.145.070
Fees for mediation services 3.145.060
Requests for mediation services 3.145.050
Services, community mediation 3.145.040
Source of funding 3.145.080
The Director of Community Mediation 3.145.020
The Office of Community Mediation 3.145.010
Volunteer community mediators 3.145.030

COMPENSATION, SALARIES, ETC.
City officers and employees Charter Art. VIII-1 et seq.
See: CITY OFFICERS AND EMPLOYEES

COMPTROLLER
Accounting control over assessments 5.04.080
Appointment of officers and employees 5.04.010
Auditor of Sheriff's Office 5.04.100
Bond Clerk—Assistant Bond Clerk 5.04.110
Contingent fund report
Filing—City Register 5.04.140
Required 5.04.130
Contingent fund 5.04.120
Countersignature of Comptroller to special tax bills—Designation
Filing 5.04.050
Revocation 5.04.060
Department of finance Charter Art. XV-1 et seq.
See: DEPARTMENT OF FINANCE
Deputy Comptroller 5.04.020
Employment of experts 5.04.070
First and Second Assistant Comptroller 5.04.030
Leasing City property 5.04.090
License Collector duties—Transference 5.04.150
Use of Acting Comptroller title 5.04.040

COMPUTATION OF TIME
Definitions and rules of construction 1.08.070

CONDEMNATION PROCEEDINGS
Additional or supplemental petitions 20.58.050
Clerical work 20.58.110
Commissioners, sessions 20.58.060
Compensation of Commissioners 20.58.100
Comptroller duties 20.58.070
Final report to include partial reports 20.58.040
Notice and place of hearings 20.58.010
Partial reports 20.58.020
Payment of benefits—Execution sales 20.58.080

CONDEMNATION PROCEEDINGS (Cont'd.)
Revolving fund 20.58.130
Sale of condemned buildings and other material obstructions 20.58.120
Satisfaction of judgment 20.58.090
Taking possession 20.58.030

CONFLICT OF INTEREST
Declaration of policy 4.07.010
Disclosure reports 4.07.030
Filing of ordinance 4.07.050
Provisions re 4.07.020
Reports, filing of 4.07.040

CONSERVATION AND PRESERVATION
General provisions
Ordinances
Numbered—Preserving 1.28.010

CONSUMER PROTECTION
Advertising
Affixing advertisements on any structures 15.84.020
Dispensing information for medicines for sexual problems 15.84.070
False want ads 15.84.040
Statement of facts 15.84.030
Untrue, deceptive or misleading 15.84.010
Motor vehicle sales
Instruments evidencing debt 15.88.020
Person defined 15.88.010
Written statement and memorandum 15.88.030
Passengers or baggage, soliciting
Posting chapter 15.94.020
Prohibited 15.94.010
Real estate advertising
Use zoning district on signs 15.90.010
Solicitation of customers from competitive stores
Limitations 15.96.010
Title certificate, real estate
Statement as to zoning 15.92.010
Unlawful sale of ads and listings
Enumerated 15.98.010
Penalty for violation 15.98.020

CONTRACTORS
Administration 8.12A.070
Appeals 8.12.080
Application for license 8.12.050
Chapter 8.12 suspended 8.12A.010
Contractor and person defined 8.12.010
Definitions 8.12A.020
Effective date of provisions 8.12A.090
Graduated business license tax
Designated 8.12A.050
Schedule 8.12A.040

CONTRACTORS (Cont'd.)
Gross receipts statement—Licensing period 8.12.030
Initial period license 8.12.040
License required 8.12.020, 8.12A.030
Penalty for violation 8.12.110, 8.12A.100
Prosecution or liability not affected 8.12A.080
Rules and regulations 8.12.070
Subcontractors 8.12.100
Tax 8.12.090
Termination of business within the City 8.12.060
To be named in application, subcontractors 8.12A.060

CONTRACTS FOR PUBLIC WORKS
Certification of non-debarment
Debarment prohibited 6.17.010
Penalty 6.17.030
Provisions re 6.17.020
Defective work complaints
Complaint contents 6.12.030
Consideration of complaint 6.12.050
Cost estimate—Deposit required 6.12.040
Decision—Record 6.12.090
Examination—Cost 6.12.020
Hearing—Testimony under oath 6.12.080
Mayor to be given copy of decision 6.12.100
Notice of hearing 6.12.060
Process for witnesses—Special deposit required 6.12.070
Right to complain—Examination—Decision 6.12.010
Emergency work
Additional information 6.08.050
Approval by Comptroller required 6.08.030
Authority to enter into contracts 6.08.010
Penalty for violation of Section 6.08.050 6.08.060
Procedure for cases involving emergency work 6.08.040
Solicitation of bids—When required 6.08.020
Procedures and terms
Annual emergency contracts for sewers 6.04.220
Awarding contracts 6.04.080
Bids
Additional information 6.04.120
Generally 6.04.020
Opening 6.04.050
Rejection 6.04.070
Bond—Conditions 6.04.100
City contracts to provide eight-hour day 6.04.150
Contracts 6.04.010
Deposit
Amount 6.04.030
Conditioned—Time extension 6.04.040
Disposition 6.04.060

CONTRACTS FOR PUBLIC WORKS (Cont'd.)
Procedures and terms (Cont'd.)
Deposit (Cont'd.)
Forfeiture—New bids 6.04.110
Engineering and inspection costs special fund 6.04.230
Grading and repairs, contracts for 6.04.210
Official number 6.04.140
Penalty for violation of Section 6.04.120 6.04.130
Special tax work deposit
Additional 6.04.190
Return 6.04.200
Use 6.04.180
Sunday clause 6.04.160
Sureties and bonds 6.04.090
Suspension clause 6.04.170
Public works contract
Action to debar—Procedure 6.16.030
Contract requirements 6.16.020
Debarred contractor 6.16.010
Service contracts
Action to debar—Procedure 6.20.060
Bond required 6.20.040
Contract with debarred contractor prohibited 6.20.070
Debarment of contractor 6.20.050
Definitions 6.20.010
Lease premises, contract to 6.20.030
Recordkeeping requirements 6.20.080
Requirements, contract 6.20.020

CONVENTION CENTER AND AUDITORIUM COMMISSION
Alfonso J. Cervantes Convention and Exhibition Center 3.62.010

CONVENTION, EXHIBITION AND COMMUNITY CENTER FUND
Budget appropriation required 5.36.020
Contract payment limit—Board of Aldermen concurrence 5.36.030
Definitions 5.36.005
Established 5.36.010

CONVERSION THERAPY
Complaints 11.115.040
Definitions 11.115.010
Health department functions, duties and authorities 11.115.030
Penalty for violation 11.115.050
Prohibited practice 11.115.020

CORONER
Bond 3.22.010
Compensation for bringing dead body to shore 3.22.100

CORONER (Cont'd.)
Deputies 3.22.060
Inquests and deaths to be reported 3.22.020
Method of paying expenses of inquests 3.22.030
Post-mortem fees 3.22.040
Reporter
Appointment 3.22.070
Duties—Fees 3.22.080
Statement of fees to be filed 3.22.050
Stenographers 3.22.090

CORRECTIONAL AND DETENTION FACILITIES
Access of by attorneys
Attorney access to detainees and detention facilities 16.30.020
Definitions 16.30.010
Penalty for violation
Commissioner or sheriff 16.30.040
Division of corrections or sheriff's office staff member 16.30.045
Prohibition on retaliation 16.30.030

COUNTY
Definitions and rules of construction 1.08.080

COURTS
City courts Charter Art. XII-1 et seq.
See: CITY COURTS
For the Separation and Reorganization of the Governments of the City and County of St. Louis and the Adjustment of Their Relations. See: SCHEME

CRIMINAL JUSTICE COORDINATING COUNCIL
Authority to enter agreement—Composition—Powers and duties 3.69.020
Budget 3.69.050
Constitutionality 3.69.090
Creation—Intergovernmental agreement 3.69.010
Dissolution—Transfer of assets 3.69.080
Executive director—Staff 3.69.040
Information sharing agreement 3.69.060
Reports 3.69.100
Termination 3.69.070
Vacancies 3.69.030

CULTURAL RESOURCES
Administration and enforcement
Administration 24.48.010
Enforcement—Generally 24.48.020
Penalty for violation—Generally 24.48.030
Savings provision 24.48.040
Amendment or removal of designations 24.12.040
Appeals
Decisions of the Preservation Board, appeals from—Generally 24.28.010

CULTURAL RESOURCES (Cont'd.)
Consideration of permit application 24.12.060
Demolition reviews
Administration 24.40.170
Appeals 24.40.060, 24.40.150
Application 24.40.010
Boundaries, Preservation Review District 24.40.180
Demolition permit
Application plans 24.40.110
Approval—Effect of prior legal actions 24.40.160, 24.40.070
Board decision 24.40.120
Copies of application submitted, to whom 24.40.090
Photos 24.40.030
Preservation Board decision 24.40.040
Review approval 24.40.020, 24.40.100
Denial—Proposed subsequent construction 24.40.140
Evaluation—Validity of approval or denial—Application 24.40.130
Preservation Review Districts 24.40.080
Time requirements—Application—Evaluation—Validity of approval or denial 24.40.050
Designation of historic districts and landmarks
Historic districts, designation of
Criteria for designation 24.16.010
Determination—Historic district designation 24.16.080
Distribution and review of petition—Historic district designation 24.16.040
Expression of views by interested parties—Historic district designation 24.16.070
Generally—Historic district designation 24.16.020
Historic district designation bill
Copy filing 24.16.120
Notice of pendency 24.16.110
Notice of public hearing—Historic district designation 24.16.060
Petition filing requirements—Historic district designation 24.16.030
Preparation of Historic district designation bill upon approval of petition 24.16.090
Procedure upon disapproval of petition—Historic district designation 24.16.100
Public hearing on petition—Historic district designation 24.16.050
Revision of historic district standards 24.16.130
Landmarks or landmark sites, designation of
Determination—Landmark/landmark site designation 24.16.180

CULTURAL RESOURCES (Cont'd.)
Designation of historic districts and landmarks (Cont'd.)
Landmarks or landmark sites, designation of (Cont'd.)
Distribution and review of petition—Landmark/landmark site designation 24.16.160
Generally—Landmark/landmark site designation 24.16.140
Hearing on petition—Landmark/landmark site designation 24.16.170
Landmark/landmark site designation bill
Copy filing 24.16.220
Notice of pendency 24.16.210
Petition filing requirements—Landmark/landmark site designation 24.16.150
Preparation of designation bill upon approval of petition—Landmark/landmark site designation 24.16.190
Procedure upon disapproval of petition—Landmark/landmark site designation 24.16.200
Revision of landmark standards 24.16.230
Existing historic districts and landmarks 24.12.010
Historic districts and landmarks—Construction, alteration and demolition
Appeal on actions or determinations—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.060
Attempt to reconcile proposed action with applicable standards—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.080
Consideration of claim that property cannot be put to reasonable beneficial use without approval of proposed work—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.090
Decision or determination—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.110
Demolition, construction, alteration—Historic district or landmark/landmark site—Consideration of permit application 24.20.040
Determination of compliance or recommendation required before permit approved—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.030
Further appeals—Demolition—Historic district or landmark/landmark site 24.20.120
Granting or denial of permit application—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.050

CULTURAL RESOURCES (Cont'd.)
Historic districts and landmarks—Construction, alteration and demolition (Cont'd.)
Hearing on filed appeal—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.070
In review of proposed work, considerations—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.100
Permit required when—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.010
Preliminary design review of proposed construction or exterior alterations—Demolition, construction, alteration—Historic district or landmark/landmark site 24.20.020
Legislative findings with respect to review of certain demolitions
Findings 24.32.010
Maintenance of register of designations and public docket of heritage appeals 24.12.020
Permit granting for demolition 24.12.050
Preservation Board 24.08.010 et seq.
See: PRESERVATION BOARD
Preservation Review Districts 24.36.010 et seq.
See: PRESERVATION REVIEW DISTRICTS
Public structures, monuments and fixtures
Exterior design review of structures or fixtures paid for by City or erected upon or extending over public streets, parks, etc. 24.24.020
Recommendations of Preservation Board regarding public structures and monuments 24.24.010
Repeals—Purpose—Definitions—Exemptions
Definitions 24.04.030
Exemptions of certain public improvements and property 24.04.040
Purpose 24.04.020
Repeals 24.04.010
Waiver of certain building and maintenance standards 24.12.030

— D —

DANCE HALLS
Applicability of chapter 8.32.220
Closing 8.32.170
Conformance to building, health and fire regulations 8.32.100
Definitions 8.32.010
Disapproval or revocation of license 8.32.140
Disorderly or indecent conduct—Presence of undesirable persons 8.32.210
Expiration or transfer of license 8.32.070
Investigations 8.32.130

DANCE HALLS (Cont'd.)
License application, dance hall 8.32.045
Minors
Age, misrepresentation of 8.32.190
Misrepresentation as to parent or guardian 8.32.200
Prohibited after eight p.m.—Exceptions 8.32.180
Permits 8.32.080
Posting licenses 8.32.060
Powers and duties of police 8.32.120
Required—License 8.32.020
Revocation by neighborhood petition 8.32.110
Sanitation and lighting 8.32.150
Suspension or revocation of licenses or permits 8.32.090
Taxi dance halls 8.32.050
Violations, closing for 8.32.160

DANCE STUDIOS
Contracts to comply with advertising 8.34.040
Defined, dance studio and operator 8.34.010
Intent 8.34.030
Penalty for violations 8.34.050
Rate schedule 8.34.020

DEAD ANIMALS
Burying animals within City prohibited 10.16.010
Carcasses declared nuisances 10.16.120
Disposal permit
Application—Bond—Conditions 10.16.080
Recall 10.16.090
Required 10.16.070
Duty of police 10.16.050
Fee payment by veterinarians for removal of dead animals 10.16.035
Method, removal 10.16.100
Records open to inspection—Public reporting carcasses 10.16.060
Removal of buried animals
By City 10.16.030
By lot owner 10.16.020
Rendering in City—Conditions—Bond 10.16.110
Reporting carcasses—Record book 10.16.040

DEFINITIONS AND RULES OF CONSTRUCTION
Board of Aldermen 1.08.020
Catchlines 1.08.030
Charter 1.08.040
City 1.08.050
Code 1.08.060
Computation of time 1.08.070
County 1.08.080
Gender 1.08.090
General 1.08.010
Joint authority 1.08.100
Month 1.08.110

DEFINITIONS AND RULES OF CONSTRUCTION (Cont'd.)
Number 1.08.120
Oath 1.08.130
Or and 1.08.140
Owner 1.08.150
Person 1.08.160
Preceding and following 1.08.170
Property 1.08.180
Public way 1.08.190
Real property 1.08.200
Sidewalk 1.08.210
Signature 1.08.220
State 1.08.230
Street 1.08.240
Tangible personal property 1.08.250
Tenant 1.08.260
Tenses 1.08.270
Writing 1.08.280
Year 1.08.290

DEPARTMENT OF FINANCE
Abstract of books, extension of taxes and issuance of tax bills Charter Art. XV-15
Abstracts to be delivered by recorder of deeds Charter Art. XV-18
Assessment division, composition of Charter Art. XV-4
Assessments to be made Charter Art. XV-8
Assessor Charter Art. XV-5
Board of equalization—Members; oath; compensation Charter Art. XV-10
Board of standardization Charter Art. XV-28
Bond Charter Art. XV-21
Books, assessment Charter Art. XV-9
Collector—Qualifications, compensation, powers and duties Charter Art. XV-20
Composition of collection division Charter Art. XV-19
Composition Charter Art. XV-1
Depositaries of city funds Charter Art. XV-25
Deputy assessors Charter Art. XV-6
Designation of subordinate to affix comptroller's signature Charter Art. XV-3
Divisions
Audit and Accounting 5.02.020
Business Tax Index 5.02.060
Collection of Miscellaneous Revenue 5.02.040
Established 5.02.010
Municipal Investigation and Statistics 5.02.030
Special Taxes, Street Openings and Collections 5.02.050
Enforcement of payment of taxes Charter Art. XV-22
Erroneous assessments; duties of comptroller as to taxes Charter Art. XV-16

DEPARTMENT OF FINANCE (Cont'd.)
How supplies, equipment and materials are leased and purchased Charter Art. XV-29
Meetings; evidence; appeals Charter Art. XV-13
Notice of availability of assessment books and time of sessions Charter Art. XV-12
Payment of expenses of assessment Charter Art. XV-17
Powers and duties Charter Art. XV-11
Public printing and publishing Charter Art. XV-30
Supply commissioner Charter Art. XV-27
Supply division, composition of Charter Art. XV-26
The comptroller Charter Art. XV-2
To be given state, bonds Charter Art. XV-7
Treasurer Charter Art. XV-24
Treasury division, composition of Charter Art. XV-23
Who may appeal Charter Art. XV-14

DEPARTMENT OF HEALTH AND HOSPITALS
Approval of pay rolls and requisitions 3.38.070
Assistant Hospital Commissioner 3.38.030
Board of public service Charter Art. XIII-14-C
Director of Health and Hospitals 3.38.010
Health Commissioner 3.38.040
Hospital Commissioner 3.38.020
Records for Division of Health 3.38.060
Services in Division of Health 3.38.050

DEPARTMENT OF PARKS, RECREATION AND FORESTRY
Board of public service Charter Art. XIII-14-B

DEPARTMENT OF PUBLIC SAFETY
Board of public service Charter Art. XIII-15

DEPARTMENT OF PUBLIC UTILITIES
Assistant to Director 3.30.010
Board of public service Charter Art. XIIII-10
Gas bills 3.30.030
Heating courthouse 3.30.020

DEPARTMENT OF STREETS
Board of public service Charter Art. XIII-13
Bonds for certain employees 3.32.060
Director of Streets to furnish plats to City Counselor 3.32.070
Established, Office of Director 3.32.010
Head of Street Division 3.32.030
Office of Director, sections established in 3.32.020
Sections established in Street Division 3.32.040
Street Commissioner 3.32.050
To notify owner of improper location of stopcock boxes, Director of Streets 3.32.080

DEPARTMENT OF THE PRESIDENT
Board of public service Charter Art. XIII-9

DEPARTMENT OF WELFARE
Advisory Council on Aging 3.36.470 et seq.
See: ADVISORY COUNCIL ON AGING
Bellfontaine Farms 3.36.250 et seq.
See: BELLEFONTAINE FARMS
Board of Adult Welfare Services 3.36.350 et seq.
See: BOARD OF ADULT WELFARE SERVICES
Board of Children's Services 3.36.100 et seq.
See: BOARD OF CHILDREN'S SERVICES
Board of Commissioners of the Bryan Mullanphy Emigrant and Traveler's Relief Fund 3.36.400 et seq.
See: BOARD OF COMMISSIONERS OF THE BRYAN MULLANPHY EMIGRANT AND TRAVELER'S RELIEF FUND
Board of public service Charter Art. XIII-14-A
Commissioner of Children's Services 3.36.050 et seq.
See: COMMISSIONER OF CHILDREN'S SERVICES
Commitment of delinquent children
Board of Children's Services may receive children upon commitment of juvenile court of St. Louis County 3.36.180
Children not to be committed unless adjudged delinquent—Term of commitment 3.36.185
Payment for maintenance 3.36.200
Resident requirements 3.36.190
Rules and regulations for care 3.36.195
Director of Welfare 3.36.010 et seq.
See: DIRECTOR OF WELFARE
Division of Adult Services 3.36.300 et seq.
See: DIVISION OF ADULT SERVICES
Human Resources Planning and Development Officer 3.36.630 et seq.
See: HUMAN RESOURCES PLANNING AND DEVELOPMENT OFFICER
Meramec Hills 3.36.280 et seq.
See: MERAMEC HILLS
Office of Consumer Affairs 3.36.680 et seq.
See: OFFICE OF CONSUMER AFFAIRS
Office of the Disabled 3.36.730 et seq.
See: OFFICE OF THE DISABLED
Relocation services 3.36.550 et seq.
See: RELOCATION SERVICES
Youth services 3.36.580 et seq.
See: YOUTH SERVICES

DESIGNATE, DESIGNATION
General provisions
Official flower 1.18.010
Time 1.24.010

DETECTIVE AGENCIES
Applicability of chapter to public authorities 8.36.130
Definitions 8.36.010

DETECTIVE AGENCIES (Cont'd.)
Employees
Information confidential—Reports 8.36.150
License not required 8.36.140
License
Application—Investigation of applicant 8.36.030
Certificate
Duplicate 8.36.110
Posting—Surrender 8.36.100
Expiration 8.36.060
Issuance—Certificate 8.36.040
Renewal 8.36.070
Required 8.36.020
Revocation 8.36.090
Time of issuance—Transfer 8.36.080
New office location 8.36.120
Working without license—Private watchmen 8.36.160

DEVELOPMENT PROPOSALS
Definitions 3.160.010
Incentive review policy and procedures 3.160.030
Transparency 3.160.020

DIRECTOR OF PARKS, RECREATION AND FORESTRY
Athletic fields and playgrounds on private property 22.04.110
Authority over leased property 22.04.130
Building leases for residential purposes 22.04.100
Commissioner of Forestry 22.04.040
Commissioner of Parks 22.04.020
Commissioner of Recreation 22.04.030
Designation of places by donor's name 22.04.080
Donations 22.04.060
Duties 22.04.010
Leases for use of private property 22.04.120
Maintenance and care of public facilities 22.04.140
Private donations ceasing to be City property 22.04.090
Responsibilities—Permits 22.04.050
Statues 22.04.070

DIRECTOR OF PUBLIC UTILITIES
Enforcement 23.60.010
Inspection of electrical apparatus premises 23.60.030
Lighting of public buildings 23.60.020

DIRECTOR OF STREETS—TAXICAB DUTIES AND RESPONSIBILITIES
Additional rules and regulations 8.98.530
Appeal
Board of public service powers 8.98.503
Notice—Hearing 8.98.497
Notification 8.98.516
Records of drivers 8.98.479
Stand designations 8.98.473

DIRECTOR OF STREETS—TAXICAB DUTIES AND RESPONSIBILITIES (Cont'd.)
Suspension and revocation
Causes 8.98.485
Hearing 8.98.491
Violation—Penalty 8.98.536

DIRECTOR OF WELFARE
Duties 3.36.010

DISCRIMINATION
Based upon hairstyle, protective hair, or natural or cultural hair texture or style
Complaints, proceedings and enforcement 15.21.030
Definitions 15.21.010
Prohibitions 15.21.020
City leases
Provision required 15.20.010
Institutional vandalism and bias crimes
Civil Rights Enforcement Agency—Assistance to victims of bias crime—Investigations 15.19.050
Definitions 15.19.010
Ethnic or racial intimidation 15.19.030
Institutional vandalism 15.19.020
Penalty for violation 15.19.060
Police to provide information relating to bias crime to Civil Rights Enforcement Agency 15.19.040
Practices, discrimination
Real estate signs
Administration 15.18.160
Appeal 15.18.185
Applicability 15.18.195
Application for sign use 15.18.170
Penalty for violation of Section 15.18.155 15.18.190
Permit 15.18.180
Prohibited 15.18.155
Prosecution 15.18.165
Sign size and contents 15.18.175
Soliciting real estate sales
Administration 15.18.205
Appeal 15.18.230
Applicability 15.18.240
Filing fee 15.18.220
Hearing 15.18.225
Penalty for violation of Section 15.18.200 15.18.235
Permit 15.18.215
Prohibited 15.18.200
Prosecution 15.18.210

DISEASE AND DISEASE PREVENTION
Allowing filthy water or nauseous liquid waste to accumulate or be discharged 11.56.080

DISEASE AND DISEASE PREVENTION (Cont'd.)
Collection and use of putrid fat or grease 11.56.150
Communicable disease 11.56.180 et seq.
See: COMMUNICABLE DISEASE
Dead animals or filth 11.56.120
Decayed or dangerous articles
Destruction 11.56.050
Payment by City 11.56.060
Definitions 11.56.010
Drinking vessels for common use 11.56.040
Enforcement 11.56.160
Foul liquids 11.56.140
Green or unsalted hides 11.56.130
Liability of owner or agent 11.56.110
Notice for Sections 11.56.080 and 11.56.090 11.56.100
Public Health Laboratory Director—Powers and duties 11.56.020
Putrid meat, vegetables or offal, allowing to accumulate 11.56.090
Quarantine 11.56.780 et seq.
See: QUARANTINE
Sexually transmitted diseases 11.56.550 et seq.
See: SEXUALLY TRANSMITTED DISEASES
Sink, basin and tub traps 11.56.070
Use of common towels 11.56.030

DIVISION OF ADULT SERVICES
Commissioner—Appointment and duties 3.36.300
Division of Corrections—Enrollment fee for alternative community service program managed by Parole and Probation Staff 3.36.320
Fee, presentence investigation 3.36.311
Presentence investigation defined 3.36.310

DIVISION OF CIVILIAN OVERSIGHT
Additional scope of the DFOB 3.140.140
Appointment, term of office, removal, vacancy, no compensation 3.140.090
Authority and duties 3.140.030
Budget, civilian oversight staff and investigators, office/meeting space 3.140.050
Complaint system, case management, criminal justice information and annual/quarterly reports 3.140.040
Created 3.140.020
Creation of COB; reconstitution of DFOB; oversight work plans for COB and DFOB; COB and DFOB scope of work 3.140.070
Definitions 3.140.010
DFOB proceedings, officers and member orientation 3.140.130
DFOB reconstituted 3.140.110
Member nominations, appointments, terms, vacancies and removals 3.140.120

DIVISION OF CIVILIAN OVERSIGHT (Cont'd.)
Members, qualifications and diversity of COB 3.140.080
Proceedings and officers for the COB 3.140.100
Public integrity unit 3.140.060

DIVISION OF FORESTRY
Administrative responsibilities 22.48.050
Applicability; park trees 22.48.030
Authority 22.48.070
Clearance requirements, tree 22.48.140
Commissioner of Forestry 22.48.040
Conditions, denial and revocation, permit 22.48.120
Disclaimer, private tree 22.48.210
Employees 22.48.060
Enforcement 22.48.220
Fees, permit 22.48.130
Injunctive relief 22.48.250
Interference 22.48.230
Lawn and parkway planting requirements and criteria, tree 22.48.190
Mutilation or theft of trees, shrubs or plants on City property 22.48.180
Penalty; replacement and repair costs 22.48.240
Permit required to plant 22.48.100
Placement and planting, tree 22.48.080
Preservation and replacement, tree 22.48.150
Private tree hazards 22.48.200
Purpose and intent 22.48.010
Regulations 22.48.260
Rules of construction, definitions 22.48.020
Sewer damage 22.48.160
Sidewalk damage 22.48.170
To maintain, permit required 22.48.110
Tree planting 22.48.090

DIVISION OF HOSPITALS
Admissions and discharges 12.08.080
Application for charity—Posting 12.08.110
Blood transfusion contracts 12.08.210
Board, room and laundry for employees 12.08.060
Care for persons with infectious and contagious diseases 12.08.030
Certification of indigent patients 12.08.200
Communicable disease patients 12.08.190
Contracts 12.08.120
Duties of convalescent patients 12.08.070
Emergency treatment 12.08.150
Inability to pay 12.08.160
Indigent sick to receive priority 12.08.180
Married women and children 12.08.170
Medical Education and Research Fund 12.08.140
Obtaining charitable assistance through misrepresentation 12.08.090

DIVISION OF HOSPITALS (Cont'd.)
Payment in advance 12.08.130
Representation statement 12.08.100
Rules and regulations 12.08.010
Sanitation 12.08.020
Superintendents 12.08.050
Temporary emergency hospitals 12.08.040

DIVISION OF PARKS
Commissioner of Parks—Appointment—Responsibilities 22.08.010
Employees 22.08.020
Fishing 22.08.050
Park guards 22.08.030
Picnic area permits 22.08.040

DIVISION OF RECREATION
Commissioner of Recreation—Appointment—Responsibilities 22.12.010
Employees 22.12.020
Mark C. Steinberg Memorial Skating Rink schedules and charges 22.12.060
Permits and schedules for facilities 22.12.040
Rules and regulations 22.12.030
Sales tax 22.12.070
Tennis court permits 22.12.050

DIVISION OF WEIGHTS AND MEASURES
Bonds 9.12.020
Commissioner
Deputy—Inspectors 9.12.010
Powers and duties 9.12.030
Deputy and inspectors—Powers and duties 9.12.050
Official guide 9.12.040

DOMESTIC PARTNERSHIPS
Agreements to waive provisions void 8.37.070
Defined, domestic partnership 8.37.010
Filing fees 8.37.040
Interference with registration—Restriction of rights—Unlawful 8.37.060
Penalty for violation 8.37.080
Registration, domestic partnership 8.37.020
Rights of registered domestic partners 8.37.050
Termination of domestic partnerships 8.37.030

DOMESTIC VIOLENCE PREVENTION AND FAMILY SUPPORT FUND
Appearance and accessibility 5.102.030
Change collection containers installed 5.102.020
Deposit 5.102.050
Disposition of change collected 5.102.040
Established 5.102.010
Temporary program suspension 5.102.070
Use of funds 5.102.060

DRUGS
Controlled substance possession
Definitions 11.60.250
Drug-related overdoses and medical assistance—Immunity from prosecution for possession or control 11.60.280
Enhanced penalty for violation 11.60.270
Management or control of premises, prohibited 11.60.240
Penalty for violation of Section 11.60.230 11.60.260
Possession, prohibited 11.60.200
Prohibited premises for manufacturing, storing or distributing controlled substances 11.60.230
Violation, penalty for 11.60.220
Derivatives, drugs and drug
Adulteration 11.60.150
Enumerated 11.60.080
Exceptions 11.60.110
Narcotic possession 11.60.100
Opium dens 11.60.140
Penalty for violation for Sections 11.60.100—11.60.130 11.60.130
Possession of certain items 11.60.070
Prescription required 11.60.090
Prima facie evidence 11.60.120
Enforcement of marijuana laws
Definitions 11.61.010
Probable cause and reasonable suspicion 11.61.030
Recognition 11.61.040
Use of city resources 11.61.020
Inhaled gases
Enumerated 11.60.010
Hearing—Conviction 11.60.030
Possession for medicinal purposes 11.60.040
Prohibited acts 11.60.020

DWIGHT F. DAVIS TENNIS TOURNAMENT CENTER
Contract 22.36.030
Created—Location 22.36.010
Fund 22.36.020

— E —

EARNINGS TAX
Continuation of earnings tax 5.22.023
Definitions 5.22.010
Earnings tax credit 5.22.025
Enforcement 5.22.100
Evasion, tax 5.22.140
Exemption 5.22.160
Individual, nonresident 5.22.040
Interest and penalties on unpaid taxes 5.22.110
Nonresident businesses 5.22.030

EARNINGS TAX (Cont'd.)
Nontaxable income 5.22.090
Penalty for violation 5.22.130
Promoters, booking agents, managers and publishers—Penalty 5.22.150
Reconciliation report 5.22.080
Recoverable, taxes, interest and penalties 5.22.120
Return—Payment 5.22.050
State's compensation 5.22.070
Tax imposed 5.22.020
Withholding 5.22.060

ELECTIONS
Alderman Charter Art. II-3
Conduct of elections Charter Art. II-7
Elections on initiative, referendum or recall
Notice to be given Charter Art. II-6
When held Charter Art. II-5
Expense of elections on initiative, referendum or recall Charter Art. II-8
Flags at polling places
Display 2.04.020
To be provided, flag 2.04.010
General ticket required for elective officers Charter Art. II-4
Initiative Charter Art. V-1 et seq.
See: INITIATIVE
Mayor and comptroller Charter Art. II-2
Municipal elections Charter Art. II-9
Recall of elective officers Charter Art. III-1 et seq.
See: RECALL OF ELECTIVE OFFICERS
Referendum Charter Art. VI-1 et seq.
See: REFERENDUM
Rules and procedures, election
Ballots
Candidates names 2.08.110
Sample—Distribution 2.08.120
Board of Election Commissioners to prepare blanks 2.08.250
Candidate payment to political party 2.08.060
Canvass of votes 2.08.200
Central committees to file certificate of nomination 2.08.300
Challengers and witnesses 2.08.180
Change of date of filing declaration of candidacy 2.08.370
City officers to be separate from general state primary, primary elections of 2.08.350
Declaration of results—Certificate of nomination 2.08.270
Designation of judges and clerks 2.08.260
Disclosure of donors 2.08.440
Duties, City Register 2.08.410

ELECTIONS (Cont'd.)
Rules and procedures, election (Cont'd.)
Effect on election ordinances 2.08.490
Election notice
Contents—Publishing 2.08.090
Publishing requirements 2.08.100
Exception to printed ballot 2.08.150
Filing and withdrawal 2.08.400
General state elections to be separate from election of candidates for City offices 2.08.360
Incorporated, election statutes 2.08.390
Independent candidate payment 2.08.070
Intent, declaration of 2.08.050
Municipal elections 2.08.450
Ballot instructions 2.08.470
Conduct 2.08.460
Nominations 2.08.010
Occurring after last day for filing, vacancies 2.08.290
One declaration per candidate—Filing 2.08.080
Party candidate
Determination 2.08.230
Ties 2.08.240
Payment of taxes and bills for services by candidates for elective office 2.08.430
Primary
Date 2.08.020
Expenses 2.08.130
Notice 2.08.030
Supplemental notice 2.08.040
Provisions for nomination
Candidates of parties having no central committee 2.08.320
Nonpartisan candidate 2.08.330
Publication of list of offices to be filled 2.08.420
Rejection of ballot—Party change 2.08.190
Returns
Procedure 2.08.220
Required 2.08.210
RSMo 122.650 and 122.660 (1969) 2.08.380
Statutes regulating elections to apply to primaries 2.08.280
Substitute candidates 2.08.340
Tickets 2.08.140
To be placed on ballot, nominees 2.08.310
Vacancies 2.08.480
Vacancies of nominee 2.08.160
Voter qualifications 2.08.170
Wards
Boundaries established 2.12.010
When general elections held Charter Art. II-1

ELECTRICAL CODE
Adopted 25.02.010

ELECTRICAL CODE (Cont'd.)
Amendments 25.02.020
Penalty 25.02.030

ELECTRICAL COMPANIES GROSS RECEIPTS TAX
Bond 23.30.040
Definitions 23.30.005
Generally 23.30.010
Gross receipts tax 23.30.030
Statement of gross receipts 23.30.020

EMERGENCY VEHICLES
Displayed warning lights 17.14.010
Exemption for emergency vehicles 17.14.020
Following emergency vehicle 17.14.040
Giving right-of-way to emergency vehicles 17.14.030
Stationary emergency vehicle 17.14.050

EMINENT DOMAIN
Acquisition of property by private purchase; vacation of streets, etc. Charter Art. XXI-14
Application of amendment to prior proceedings Charter Art. XXI-20
Appropriation of private property in excess of actual requirements Charter Art. XXI-16
Commissioners, appointment, duties Charter Art. XXI-3
Cost of litigation, compensation of commissioners Charter Art. XXI-9
Determination of damages; liability of benefited property Charter Art. XXI-4
Division of assessment against joint owners Charter Art. XXI-19
Effect on abutting property of establishment of boulevards and parkways; power of city Charter Art. XXI-11
Entry of judgment; payment of damages; collection where city fails to pay Charter Art. XXI-8
Exceptions, review by court Charter Art. XXI-7
Information to be filed by board of public service Charter Art. XXI-1-A
Initiation of proceedings Charter Art. XXI-1
Issuance and service of summons Charter Art. XXI-2
Limitation on subsequent action where proceedings dismissed Charter Art. XXI-10
May be paid in installments, when assessments; issuance of bonds in anticipation of unpaid installments Charter Art. XXI-15
Payment of benefits in installments; issuance of anticipation bonds Charter Art. XXI-17
Procedure in condemnations for miscellaneous purposes Charter Art. XXI-12

EMINENT DOMAIN (Cont'd.)
Property to be viewed; establishment of benefit or taxing district; publication of boundaries; report of assessment Charter Art. XXI-5
Rights of city upon payment of damages into court Charter Art. XXI-6
Sale of unpaid judgments for benefit assessments Charter Art. XXI-18
When assessment for benefits to equal amount of damages Charter Art. XXI-13

EMPLOYMENT AGENCIES
Bond 8.40.040
Deceptive practices 8.40.060
Intelligence office defined 8.40.010
License—Required—Endorsement—Limitations 8.40.020
Posting copy of chapter 8.40.050
Revocation of license 8.40.070

ENERGY CONSERVATION CODE
Adoption 25.13.010
Amendments 25.13.020
Penalty 25.13.030

ENHANCED ENTERPRISE ZONE BOARD
Amendments 3.81.030
Appointment 3.81.040
Duties of Board of Aldermen 3.81.050
Established—Terms 3.81.010
Powers and duties 3.81.020

ENTERTAINMENT LICENSE TAX
Acts in permanent proscenium theaters
License application 8.08.120
Penalty for violation 8.08.130
Tax levied 8.08.110
Application 8.08.060
Boxing matches, shows, or exhibitions—Temporary suspension of tax 8.08.015
Computation—Issuance of license 8.08.020
Imposed 8.08.010
Intent 8.08.090
Motion picture shows
Penalty for violation 8.08.150
Tax imposed 8.08.140
New businesses 8.08.030
Other tax liability 8.08.070
Penalty for violation of Sections 8.08.010—8.08.090 8.08.100
Religious, educational or charitable purposes 8.08.050
Rules and regulations 8.08.080
Single instance or limited time businesses 8.08.040

EXCAVATIONS
Deposit or bond 20.30.030
Fencing and lighting 20.30.080
Footbridge over sidewalk excavations 20.30.050
Inspector's time 20.30.140
Installation of scales or railroad switch track 20.30.020
Lateral supports 20.30.150
Length limit 20.30.070
Materials excavated, deposits of 20.30.090
Permit required 20.30.010
Refilling
General regulations 20.30.110
Layers—Tamping 20.30.100
Reasons for not granting a permit 20.30.120
Regulations 20.30.040
Temporary roadway 20.30.060
Trenches 20.30.130

EXCISE DIVISION
Deputies and employees and hearing officers 14.02.020
Established 14.02.010
Excise Commissioner to impose certain terms and conditions on a license, power of—When 14.02.040
Interest in places manufacturing or selling intoxicating liquor or nonintoxicating beer 14.02.070
Neglect of duty—Removal from office 14.02.100
Oath and bond 14.02.060
Powers and duties 14.02.030
Reports to state supervisor 14.02.080
Reports to the Mayor 14.02.090

EXISTING BUILDING CODE
Adoption 25.20.010
Amendments 25.20.020
Penalty 25.20.030

— F —

FINANCE
Board of estimate and apportionment Charter Art. XVI-1 et seq.
See: BOARD OF ESTIMATE AND APPORTIONMENT
City bonds Charter Art. XVII-1 et seq.
See: CITY BONDS
Civil service Charter Art. XVIII-1 et seq.
See: CIVIL SERVICE
Department of finance Charter Art. XV-1 et seq.
See: DEPARTMENT OF FINANCE
For the Separation and Reorganization of the Governments of the City and County of St. Louis and the Adjustment of Their Relations. See: SCHEME
Improvement bonds and funds Charter Art. XXIV-1 et seq.
See: IMPROVEMENT BONDS AND FUNDS

FINANCE (Cont'd.)
Public works and improvements Charter Art. XXII-1 et seq.
See: PUBLIC WORKS AND IMPROVEMENTS
Special tax bills Charter Art. XXIII-1 et seq.
See: SPECIAL TAX BILLS

FINES, FORFEITURES AND OTHER PENALTIES
General penalty 1.12.010 et seq.
See: GENERAL PENALTY
General provisions
Ordinances
Effect of repeal
On offense or penalty 1.28.070

FINGERPRINT-BASED BACKGROUND CHECK REQUIREMENTS
Certain fingerprinting requirements 8.124.030
Definitions 8.124.020
Fitness determinations 8.124.040
Intent 8.124.010
Revocation of positive fitness determination 8.124.050

FIRE ALARM SYSTEM
Chief Electrical Engineer
Appointment—Powers and duties generally 3.24.360
Bond 3.24.370
Use of vehicles 3.24.380
Conduits and manholes 3.24.420
Erection and maintenance of poles for use of City 3.24.410
Installation of fire alarm and auxiliary boxes 3.24.440
Management and control of system 3.24.350
Records to be kept 3.24.430
Repair of damaged equipment 3.24.390
Right of entry for repairs—Refusal of admittance—Tampering with or damaging property 3.24.400
Rules and directions for signaling alarms of fire 3.24.340
Signal of alarm of fire 3.24.330

FIRE DEPARTMENT
Arson investigation detail
Equipment to be provided 3.24.590
Established 3.24.550
Membership—Appointments 3.24.560
Office equipment and administrative employees 3.24.600
Powers—Training requirement 3.24.570
Purpose and duties 3.24.610
Training program 3.24.580
Written reports required 3.24.620
Bureau of Fire Prevention 3.24.200 et seq.
See: BUREAU OF FIRE PREVENTION
Chief's powers and duties generally 3.24.040

FIRE DEPARTMENT (Cont'd.)
Composition 3.24.010
Drill required 3.24.110
Drillmaster to be provided 3.24.130
Duties of assistants—Subordinate officers to perform duties of Chief in his absence 3.24.030
Fire alarm system 3.24.330 et seq.
See: FIRE ALARM SYSTEM
Firemen at City institutions 3.24.080
Hours of service 3.24.070
Inspection of buildings or premises 3.24.100
Legal defense of firemen
City Counselor to defend firemen—Judgments against firemen 3.24.490
Mutual fire protection services
Consideration for service 3.24.710
Contract for services—Generally 3.24.670
Equipment loss or damage—Liability 3.24.740
Execution of agreement 3.24.700
Failure to respond, nonliability for 3.24.720
Functions of mutual aid—Notifying party to be in command 3.24.760
Mutual aid agreement
Scope of response 3.24.680
Termination 3.24.690
Nonliability by participants to other than regular employees 3.24.730
Subject to local laws and ordinances, mutual aid participants 3.24.750
Understanding of mutual aid agreements 3.24.770
Office of the Fire Chief in City Hall 3.24.090
Payment of salary during job related injury or sickness 3.24.120
Police power of Chief and assistants 3.24.060
Secretary's duties 3.24.050
Selection of officers 3.24.020
Uniforms 3.24.140
Use of fire apparatus outside of City 3.24.150

FIREARMS MANUFACTURE
Definitions 8.41.010
Regulation 8.41.020
Violation—Penalty 8.41.030

FIREFIGHTERS' RETIREMENT PLAN
Administration—Powers and duties of Trustees 4.19.140
Amendment 4.19.160
Claims and review procedure 4.19.150
Death benefits 4.19.080
Definitions 4.19.020
Disability income 4.19.070
Eligibility and contributions 4.19.030
Establishment of the plan 4.19.010

FIREFIGHTERS' RETIREMENT PLAN (Cont'd.)
Funding 4.19.120
Grandfathered pension benefits 4.19.060
Limitations of benefits 4.19.090
Miscellaneous 4.19.170
Payment of benefits 4.19.100
Retirement benefits 4.19.050
Service 4.19.040
Special payment rules 4.19.110
Trust fund investments 4.19.130

FIREMEN'S RETIREMENT SYSTEM
Accidental disability allowance
Amount 4.18.157
Application 4.18.155
Computation 4.18.160
Accumulated sick leave 4.18.386
Actuarial investigation and tables 4.18.100
Actuary 4.18.095
Adjustment of disability allowances 4.18.175
Allowances, increases in 4.18.165
Amendment and repeal 4.18.345
Annual valuation of funds 4.18.105
Armed forces during war, credit for service in 4.18.140
Benefit reserve fund 4.18.280
Board of Trustees
Composition—Vacancy—Compensation—Oath—Votes 4.18.055
Data for actuarial valuation 4.18.070
Jurisdiction 4.18.060
Officers—Employees 4.18.065
Records—Reports 4.18.080
Certification of amounts due the general reserve fund 4.18.320
Consumer Price Index increase 4.18.125
Continuance of disability allowances, medical exams for 4.18.170
Contribution rates 4.18.110
Cost of living benefits—Retirees, surviving spouses and dependent children 4.18.351
Covered under this chapter, members 4.18.220
Created 4.18.015
Creditable service
Filing statement 4.18.030
Prior service 4.18.045
Retirement base 4.18.050
Verification 4.18.040
Year equivalent 4.18.035
Death benefits
Accidental death in service 4.18.195
Funeral expenses 4.18.201
Resigned member 4.18.200
Result of accident while on duty 4.18.205

FIREMEN'S RETIREMENT SYSTEM (Cont'd.)
Death benefits (Cont'd.)
Retired members or members on disability allowance 4.18.185
Definitions 4.18.010
DROP program 4.18.131
Early withdrawal of funds 4.18.210
Exempt from taxes and attachments, benefits 4.18.330
Expense fund 4.18.315
Funds
Board and employees restricted on gains 4.18.245
Cash on hand—Deposits 4.18.240
Custodian—Vouchers 4.18.235
Enumerated 4.18.250
Interest rates 4.18.230
Investments 4.18.225
Use of representative to acquire and dispose of investments 4.18.226
General reserve fund
Accrued liability contribution rate 4.18.300
Amounts payable 4.18.305
City contributions 4.18.285
Contributions and payments 4.18.290
Discontinuing liability contributions 4.18.310
Normal contribution rate 4.18.295
Increases, benefit—Funding 4.18.132
Initial appropriation 4.18.340
Legal Advisor 4.18.085
Medical Board 4.18.090
Member contribution
Cash payment or note 4.18.275
Consent—Crediting individual account 4.18.265
Percentage 4.18.260
Refunds, additional benefits 4.18.270
Membership
Absence 4.18.025
Exclusive 4.18.020
Ordinary disability allowance
Application 4.18.145
Computation 4.18.150
Payment of difference between benefits paid and accumulated contributions 4.18.215
Problems of retirement, special consultants on 4.18.207
Reinstatement of disabled members 4.18.180
Reserves, fund 4.18.325
Resigned members leaving contributions in system 4.18.135
Retirement
By Board of Trustees 4.18.115
Written application after twenty-five years of service—Compulsory retirement—Seventy percent requirement 4.18.120
Savings fund, members' 4.18.255

FIREMEN'S RETIREMENT SYSTEM (Cont'd.)
Service retirement allowance 4.18.130
Special advisors to Retirement System 4.18.208
Staggered refunds—Special advisor to Retirement System 4.18.209
Transfer of existing funds 4.18.335

FIREWORKS
Adults prohibited to allow minors to violate fireworks prohibition 15.82.040
Definition 15.82.010
Findings 15.82.020
Penalties 15.82.060
Prohibited, fireworks 15.82.030
Public displays exception with City Fire Marshal permission 15.82.050

FIRST SOURCE JOBS POLICY
Created, first source register 3.90.020
Definitions 3.90.010
Employment agreement required 3.90.030
Enforceability 3.90.050
Reports 3.90.040
Severability 3.90.060

FISH AND FISH PRODUCTS
Adulteration or misbranding 11.50.140
Cleanliness, employee 11.50.400
Condemnation 11.50.210
Definitions 11.50.010
Disease control 11.50.420
Display and refrigeration 11.50.090
Doors and windows 11.50.260
Drying cloths 11.50.340
Employee toilet and dressing rooms 11.50.290
Floors 11.50.240
General sanitation 11.50.230
Inspection
Interference 11.50.180
Required 11.50.150
Right of entry 11.50.170
Withdrawal 11.50.160
Labels 11.50.100
Lavatory facilities, employee 11.50.310
License
Permit prerequisite 11.50.030
Retail fish markets 11.50.020
Lighting 11.50.270
Miscellaneous 11.50.410
Penalty for violation 11.50.430
Permit
Application 11.50.050
Certification of health officer 11.50.060
Required 11.50.040

FISH AND FISH PRODUCTS (Cont'd.)
Permit (Cont'd.)
Revocation 11.50.070
Rules of board 11.50.080
Prepackaged fish and product 11.50.110
Protection from contamination 11.50.390
Refrigeration 11.50.370
Retail fish markets to be kept clean 11.50.120
Rules and regulations 11.50.220
Sampling 11.50.200
Storage and handling utensils 11.50.350
Temporary or mobile vendors or hawkers 11.50.130
Utensils and equipment
Cleaning 11.50.330
Construction 11.50.320
Ventilation 11.50.280
Walls and ceilings 11.50.250
Waste disposal 11.50.360
Water supply 11.50.300
Wholesomeness of fish and product 11.50.380
Work orders 11.50.190

FOOD AND FOOD SERVICES
Food code 11.42.010 et seq.
See: RESTAURANTS
Inspectors of human food products 11.38.020 et eq.
See: INSPECTORS OF HUMAN FOOD PRODUCTS
Restaurants. See: RESTAURANTS
Third-party food delivery services 8.122.010 et seq.
See: THIRD-PARTY FOOD DELIVERY SERVICES

FOREST PARK ADVISORY BOARD
Applicability of City Charter Art. VIII, Section 12 3.96.050
Appointments subject to approval of the Board 3.96.030
Authority and responsibilities 3.96.040
Established 3.96.010
Membership—Terms of members 3.96.020

FRANCHISES
Conditions of grant or renewal Charter Art. XIX-3
Control of public utilities Charter Art. XIX-2
Maintenance of streets by street railroads Charter Art. XIX-4
Use of tracks of one street railroad by another Charter Art. XIX-5

FROZEN DESSERTS
Definitions
Adulterated 11.51.010
Confectionery 11.51.020

FROZEN DESSERTS (Cont'd.)
Definitions (Cont'd.)
Custard, French ice cream, French custard ice cream, frozen 11.51.040
Distributor, frozen desserts 11.51.050
Edible fats 11.51.030
Health authority or health officer 11.51.080
Ice cream 11.51.090
Ice milk 11.51.100
Ingredients other than milk and milk products 11.51.110
Mellorine 11.51.120
Milk and milk products 11.51.130
Misbranded 11.51.140
Mix or frozen desserts mix 11.51.150
Official laboratory 11.51.160
Pasteurization 11.51.170
Person 11.51.180
Plant, frozen desserts 11.51.060
Processor, frozen desserts 11.51.070
Sherbet or fruit sherbet 11.51.190
Water ice 11.51.200
Inspection and examination and standards
Access to establishment for inspection 11.51.270
Discretionary samplings 11.51.320
Frequency of inspection—Report 11.51.260
Method other than pasteurization 11.51.300
Notice when samples not within standards 11.51.340
Production and processing standards 11.51.290
Quality standards for ingredients 11.51.280
Required samplings 11.51.310
Samples taken in official laboratories 11.51.330
Testing for adequate pasteurization 11.51.350
Miscellaneous regulations
From points beyond the limits of routine inspection, frozen desserts 11.51.640
Future frozen desserts plants 11.51.650
Labeling 11.51.610
Notification of disease 11.51.660
Procedure when infection suspected 11.51.670
Sale of adulterated, misbranded mix or frozen desserts prohibited 11.51.600
Transferring and dispensing frozen desserts 11.51.630
Which may be sold, frozen desserts 11.51.620
Permits
Hearings 11.51.240
Issuance—Fees 11.51.220
Reinstatement 11.51.250
Required—Exemptions 11.51.210
Suspension and revocation 11.51.230

FROZEN DESSERTS (Cont'd.)
Sanitation standards for plants
Cleaning and bacterial treatment of multi-use utensils, containers and equipment 11.51.470
Construction and repair of containers, utensils and equipment 11.51.450
Cooling and handling 11.51.520
Disposal of waste 11.51.460
Doors and windows 11.51.380
Floor construction 11.51.360
Handling of containers and equipment 11.51.500
Handwashing facilities 11.51.430
Lighting and ventilation 11.51.390
Miscellaneous protection from contamination 11.51.400
Multi-use utensils, containers and equipment, storage of 11.51.480
Overflow and spillage 11.51.550
Packaging 11.51.530
Pasteurization 11.51.510
Personal health 11.51.560
Personnel cleanliness 11.51.570
Returns 11.51.540
Sanitary piping and fittings 11.51.440
Storage of single-service containers, utensils and materials 11.51.490
Surroundings 11.51.590
Toilet facilities 11.51.410
Vehicles 11.51.580
Wall and ceiling surfaces 11.51.370
Water supply 11.51.420

FUEL GAS CODE
Adopted 25.07.010
Amendments 25.07.020
Penalty for violation 25.07.030

FUND 1116 DOWNTOWN VENDING DISTRICT PARKS FUND
Special fund created 5.85.010

FUND 1116 METRO TRASH SERVICES FUND
Special fund created 5.98.010

— G —

GARBAGE AND TRASH
Solid waste disposal 11.02.010 et seq.
See: SOLID WASTE DISPOSAL

GAS COMPANY GROSS RECEIPTS TAX
Applicability, tax 23.36.060
Definitions 23.36.005
Gross receipts tax 23.36.010, 23.36.040
In lieu of other taxes, tax 23.36.070
Statement of gross receipts 23.36.020, 23.36.050

GAS COMPANY GROSS RECEIPTS TAX (Cont'd.)
Tax does not exempt other taxes 23.36.030

GENDER
Definitions and rules of construction 1.08.090

GENERAL
Definitions and rules of construction 1.08.010

GENERAL PENALTY
Action taken by court—Infraction 1.12.060
Classification of offenses 1.12.030
Commencement of prosecution
Expiration of time period 1.12.090
Time limitation 1.12.080
Courts
Action taken by court—Infraction 1.12.060
General offense—Action taken by court 1.12.050
Violation by organization—Action taken by court 1.12.070
Determination of commencement of offense and prosecution 1.12.100
Exclusivity of provisions 1.12.130
General offense—Action taken by court 1.12.050
Inapplicability of period of limitation 1.12.110
Infraction 1.12.040
Minor traffic violations and graduated penalty violations 1.12.045
Offense and infraction, general 1.12.020
Offenses and miscellaneous provisions
Classification of offenses 1.12.030
Determination of commencement of offense and prosecution 1.12.100
General offense—Action taken by court 1.12.050
Offense and infraction, general 1.12.020
Penalty for violation 1.12.010
Prosecution
Commencement of prosecution
Expiration of time period 1.12.090
Time limitation 1.12.080
Determination of commencement of offense and prosecution 1.12.100
Retroactivity of provisions 1.12.120
Suits, actions and other legal proceedings
Action taken by court—Infraction 1.12.060
General offense—Action taken by court 1.12.050
Violation by organization—Action taken by court 1.12.070
Violation by organization—Action taken by court 1.12.070
Writs, warrants and other legal processes
Action taken by court—Infraction 1.12.060
Infraction 1.12.040
Offense and infraction, general 1.12.020

GENERAL PROVISIONS
City Seal
Description—Validity 1.16.010
Code adoption 1.01.010
Abbreviations for reference to the Code 1.01.070
Code as proof of ordinances—effect of adoption 1.01.030
Code kept by register—distribution 1.01.020
Incorporation of subsequent ordinances 1.01.050
Official codification designated 1.01.040
Supplements to the Code 1.01.060
Definitions and rules of construction 1.08.010 et seq.
See: DEFINITIONS AND RULES OF CONSTRUCTION
Distribution of code
Code
Distribution 1.04.020
Register to be custodian 1.04.010
Sale 1.04.030
Ordinances—Printing, binding, distribution and sale 1.04.040
General penalty 1.12.010 et seq.
See: GENERAL PENALTY
Holidays
Martin Luther King Day 1.32.010
Veterans Day 1.32.020
Identification
City Seal
Description—Validity 1.16.010
Official flag
Description 1.20.010
Official flower
Designated 1.18.010
Officers and employees
Distribution of Code
Code
Register to be custodian 1.04.010
Ordinances
City Counselor to approve form 1.28.030
Effect of repeal
On tenure of office 1.28.060
Official flag
Description 1.20.010
Official flower
Designated 1.18.010
Ordinances, resolutions, etc.
Distribution of code
Ordinances—Printing, binding, distribution and sale 1.04.040
Ordinances. See herein that subject
Time
Reference in ordinances 1.24.020

GENERAL PROVISIONS (Cont'd.)
Ordinances
City Counselor to approve form 1.28.030
Effect of repeal
On offense or penalty 1.28.070
On rights or actions 1.28.050
On tenure of office 1.28.060
Hereafter and heretofore defined 1.28.080
Numbered—Preserving 1.28.010
Ordinance in revision a continuance 1.28.040
Proposed board bill with associated costs requiring fiscal note 1.28.090
Repeal does not revive 1.28.020
Time
Clocks in public buildings 1.24.040
Designated 1.24.010
Performance of acts and accrual of rights 1.24.030
Reference in ordinances 1.24.020

GOLF COURSES
Hours of operation and maintenance 8.100.430
Operated for gain defined, golf course 8.100.390
Permit
Application—Inspection 8.100.410
Issuance 8.100.420
Required 8.100.400
Revocation of permits 8.100.450
Rules and regulations 8.100.440

GOODS OR SERVICES
Board of public service Charter Art. XIII-1 et seq.
See: BOARD OF PUBLIC SERVICE
Civil service Charter Art. XVIII-1 et seq.
See: CIVIL SERVICE
Definitions and rules of construction 1.08.250
Franchises Charter Art. XIX-2 et seq.
See: FRANCHISES

GRADUATED BUSINESS LICENSE TAX
Administration and enforcement 8.07.060
Applicability 8.07.030
Business license application—Tax payment—When 8.07.040
Current applicable provisions to remain in effect 8.07.050
Definition 8.07.020
Home occupations—Registration in lieu of tax 8.07.042
Imposed 8.07.010
Public Safety Trust Fund 8.07.015
Severability 8.07.070
Specific organizations exempted 8.07.041

GRAFFITI
Abatement procedure—Private property 15.77.040
Authorization to designate agent 15.77.070

GRAFFITI (Cont'd.)
Billing for costs—Abatement 15.77.050
Definitions 15.77.010
Enforcement 15.77.080
Penalty for violation 15.77.090
Prohibited, graffiti 15.77.030
Provisions to govern abatement proceedings 15.77.020
Right of entry 15.77.060

— H —

HANDBILL DISTRIBUTION
Inhabited premises 11.18.200
Properly posted 11.18.190
Public places 11.18.170
Vehicles 11.18.180

HARBORS AND WHARVES
Enforcement
Aiding and abetting violation 21.32.030
Director of Streets 21.32.010
Emergency powers 21.32.040
Exemption of authorized emergency vessels and watercraft 21.32.020
General regulations
Application—Supplemental law 21.04.010
Boat livery records 21.04.080
Building on wharf
Notice of violation 21.04.040
Prohibited 21.04.030
Compliance with orders of the Director of Streets 21.04.060
Damage to wharf 21.04.050
Definitions 21.04.020
Liability for damages 21.04.090
Public health 21.04.070
Landing and mooring vessels and watercraft
Conformity to provisions 21.20.120
Equipment—Numbering 21.20.050
Landing by waterworks prohibited 21.20.110
Life lines 21.20.070
Manner of mooring 21.20.020
Mooring places 21.20.010
Not to affect taxes, mooring 21.20.090
Permit required for extended stays 21.20.030
Regulations for wharfboats 21.20.100
Removal of vessels and watercraft 21.20.040
Securing vessels and watercraft 21.20.060
Wharf rent 21.20.080
Leasing unimproved wharves
Advertisement for proposals 21.08.080
Consideration of future uses 21.08.070
Five years or less, leases for 21.08.030
Modification clause 21.08.050

HARBORS AND WHARVES (Cont'd.)
Leasing unimproved wharves (Cont'd.)
More than five years, leases for 21.08.040
Permits 21.08.020
To provide for roadway, leases 21.08.010
Unimproved and improved wharf defined 21.08.060
Municipal quays and warehouses
Care of quays 21.12.060
Contracts for freight handling 21.12.030
Definitions 21.12.010
Indemnify City, permittee to 21.12.070
Permits
Conditions—Bond 21.12.040
Required 21.12.050
Supervision by Department of Streets 21.12.020
Obstruction in water
Disposition of salvage 21.28.030
Floating objects 21.28.070
Grounded boats 21.28.010
Nuisances 21.28.080
Obstructions 21.28.050
Removal of boats in danger by fire or ice 21.28.040
Sunken vessels 21.28.060
Wrecks, removal of 21.28.020
Port Authority Commission 21.36.010 et seq.
See: PORT AUTHORITY COMMISSION
Port district rental and lease rates
Adjustment of base rate 21.10.030
Amendment of ordinances 21.10.050
Applications to be recommended by Port Commission and Board of Public Service 21.10.010
Base rental rate 21.10.020
Filing of applications 21.10.090
Lease forfeiture 21.10.075
Negotiation with users 21.10.060
Not affected, leases 21.10.070
Power of Board of Aldermen 21.10.080
Rates and adjustments to be in leases, contracts and agreements 21.10.040
Removal of goods, encroachments and obstructions
Compliance 21.16.010
Obstructing traffic 21.16.050
Removal
Encroachments 21.16.040
Goods 21.16.030
Time limit 21.16.020
Wharf Vending District 21.40.010 et seq.
See: WHARF VENDING DISTRICT
Wharfboats, drydocks, floats, piers, etc.
Arrears in wharfage 21.24.040
Barriers, pier 21.24.090
City floats 21.24.100
Designation of mooring places 21.24.050

HARBORS AND WHARVES (Cont'd.)
Wharfboats, drydocks, floats, piers, etc. (Cont'd.)
Fire piers 21.24.110
Insurance required 21.24.020
Length restricted 21.24.030
Patrol floats 21.24.120
Permit required 21.24.010
Pier lights 21.24.070
Safety devices 21.24.080
Unsafe piers and gangways 21.24.060

HEALTH AND SAFETY
Adulteration 11.40.010 et seq.
See: ADULTERATION
Air pollution 11.34.010 et seq.
See: AIR POLLUTION
Alternative nicotine products and vapor products
Definitions 11.77.010
Enforcement 11.77.060
Parental responsibility 11.77.050
Penalties 11.77.080
Prohibition of selling, distributing or vending without a sign 11.77.070
Public areas, sales or distribution in prohibited 11.77.030
Sale of distribution to, or purchase or receipt by person under 21 years old prohibited 11.77.020
Use of smokeless tobacco, alternative nicotine products or vapor products at professional, collegiate, high school and organized amateur sporting events 11.77.090
Vending machines 11.77.040
Births, deaths and burials 11.62.020 et seq.
See: BIRTHS, DEATHS AND BURIALS
Certain substances on streets, transportation of
Bond 11.14.030
Notice of route
Filing 11.14.040
Required 11.14.050
Permit
Application 11.14.020
Required 11.14.010
Comfort stations
Payment of costs 11.52.030
Supervision, operation and maintenance 11.52.010
Towels, soap and private apartments 11.52.020
Commercial blood vendor registration
Appeals 11.68.120
Blood or plasma vendor registration-identification card 11.68.050
Breath analysis 11.68.070
Definitions 11.68.040

HEALTH AND SAFETY (Cont'd.)
Commercial blood vendor registration (Cont'd.)
Denial, suspension or revocation of registration-identification card 11.68.110
Enforcement and inspection 11.68.100
Guidelines adopted 11.68.030
Penalty for violation 11.68.130
Prohibited acts 11.68.090
Purpose 11.68.020
Recordkeeping 11.68.060
Reporting of communicable disease 11.68.080
Title 11.68.010
Conduct on public transportation
Definitions 11.33.010
Interpretation—Application 11.33.020
Penalty for violation 11.33.040
Prohibited acts 11.33.030
Dangerous drugs, medicines and insecticides
Drugs 11.24.010
Insecticides or exterminators 11.24.030
Poisons 11.24.020
Demolition by neglect
Actions 11.90.070
Administrative hearings 11.90.090
Consequences of finding of undue economic hardship 11.90.110
Definitions 11.90.040
Established, demolition by neglect 11.90.010
Exercise of police powers; authority 11.90.020
Other City powers 11.90.120
Penalties and remedies 11.90.130
Petition and action thereon 11.90.060
Purpose 11.90.030
Safeguards from undue economic hardship 11.90.100
Standards 11.90.050
Summons 11.90.080
Diphenhydramine
Possession—Maximum 11.74.030
Purchased for resale—Recordkeeping required 11.74.010
Records—Inspection 11.74.040
Sale—Maximum units and dosage 11.74.020
Violation—Penalty 11.74.050
Disease and disease prevention 11.56.010 et seq.
See: DISEASE AND DISEASE PREVENTION
Drugs 11.60.010 et seq.
See: DRUGS
Enforcement of Code violations
Administrative citations 11.95.040
Chapter not in contravention with duties and powers of Health Commissioner and does not negate or preclude other remedies 11.95.020
Code violations unlawful 11.95.010

HEALTH AND SAFETY (Cont'd.)
Enforcement of Code violations (Cont'd.)
Decision of hearing officer 11.95.100
Designation of hearing officer 11.95.080
Fine, administrative citation 11.95.050
Hearing, administrative 11.95.090
Late payment charges 11.95.110
Notice of violation 11.95.030
Payment of administrative citation fine 11.95.060
Request for administrative hearing 11.95.070
Schedule of administrative fines 11.95.130
Unpaid fine, sanction, or costs are a debt due to City; judicial review; trial de novo; imposition of lien 11.95.120
Ephedrine or pseudo ephedrine
Definitions 11.75.010
Penalty 11.75.040
Report of theft 11.75.030
Violations 11.75.020
Fish and fish products 11.50.010 et seq.
See: FISH AND FISH PRODUCTS
Fluoride
Authority to add to water 11.26.010
Concentration 11.26.020
Food inspection and supervision
Duty of persons having unwholesome food 11.38.050
Inspectors of human food products 11.38.020 et seq.
Office of inspector of human food products 11.38.010
Publication of names of offenders 11.38.060
Frozen desserts 11.51.010 et seq.
See: FROZEN DESSERTS
Ground water
Definitions 11.81.010
Mayor's duties 11.81.050
Penalty for violation 11.81.060
Potable water supply 11.81.020
Reporting violations to Missouri Department of Natural Resources 11.81.040
Wells 11.81.030
Handling and display, food
Screening 11.36.010
Sidewalk display 11.36.020
Transportation 11.36.030
Hazardous substance cleanup
Authority to prevent recurrence of hazardous substance emergency 11.64.120
Citation 11.64.010
Cleanup of hazardous substance release requiring immediate action to protect public health or safety 11.64.070
Definitions 11.64.020

HEALTH AND SAFETY (Cont'd.)
Hazardous substance cleanup (Cont'd.)
Enforcement 11.64.140
Hazardous Materials Program Manager—Duties 11.64.130
Health Commissioner to investigate reports of hazardous substance release 11.64.080
Initial response to reported release of hazardous substance 11.64.060
Legislative findings 11.64.040
Liability for cleanup performed or contracted for Commissioner or Fire Enforcement Officer 11.64.110
Powers of Health Commissioner 11.64.090
Reporting of hazardous substance release 11.64.050
Restrictions on sites posted by Health Commissioner 11.64.100
Laser beams
Harassment prohibited 11.78.010
Penalty for violation 11.78.040
Possessing by minors prohibited—Exception 11.78.030
Sale to minors prohibited—Exception 11.78.020
Lead poisoning 11.22.010 et seq.
See: LEAD POISONING
Littering 11.18.010 et seq.
See: LITTERING
Markets 11.44.010 et seq.
See: MARKETS
Meat and meat products 11.48.010 et seq.
See: MEAT AND MEAT PRODUCTS
Milk 11.46.010 et seq.
See: MILK
Nuisances 11.58.010 et seq.
See: NUISANCES
Odorizing gas
Required 11.12.010
Open storage of sand and gravel
Fencing requirements
Flood wall exception 11.66.040
Gates 11.66.030
Penalty for violation 11.66.050
Permit
Effective period—Renewal 11.66.020
Required 11.66.010
Prescription Drug Monitoring Program (PDMP) 11.59.010 et seq.
See: PRESCRIPTION DRUG MONITORING PROGRAM (PDMP)
Privies 11.16.010 et seq.
See: PRIVIES

HEALTH AND SAFETY (Cont'd.)
Procedures for obsolete areas
Application
Contents 11.07.040
Review 11.07.050
Availability of state law 11.07.100
Declaration—Copy filed with Recorder of Deeds 11.07.110
Definition 11.07.020
Designating area obsolete, procedure for 11.07.030
Eminent domain 11.07.070
Findings 11.07.010
Ordinance to contain findings and declaration 11.07.080
Public hearing 11.07.090
Recommendation of Community Development Commission 11.07.060
Public drinking fountains 11.10.010 et seq.
See: PUBLIC DRINKING FOUNTAINS
Recreational fires
Conduct and management of recreational fires 11.110.020
Definition of recreational fire 11.110.010
Penalty 11.110.030
Redevelopment procedures for blighted areas
Agreement—Permits 11.06.240
Applicability 11.06.370
Building permits 11.06.340
Certificate of completion
Discharge of surety 11.06.280
Request denied 11.06.290
Review 11.06.270
Community Development Commission
Duties 11.06.090
Recommendations
Contents 11.06.120
More than one plan 11.06.130
Transmittal 11.06.110
Rights 11.06.100
Contents—Development plan ordinance 11.06.230
Definitions 11.06.020
Development plan when there is no existing plan 11.06.170
Development plan
Contents 11.06.080
Filing 11.06.070
Effect of enacting ordinance 11.06.060
Eminent domain
Certificate of public convenience and necessity 11.06.220
Deposit
Excess 11.06.210
Required 11.06.190
HEALTH AND SAFETY (Cont'd.)
Redevelopment procedures for blighted areas (Cont'd.)
Eminent domain (Cont'd.)
Deposit (Cont'd.)
Safe deposit box 11.06.200
Determination 11.06.180
Mayor recommendations 11.06.140
Proposed ordinance
Community Development Commission recommendations 11.06.050
Notification 11.06.040
Referral 11.06.030
Public hearing 11.06.150
Sale of property 11.06.350
Statement of public interest 11.06.010
Tax exempt status
Denial 11.06.330
Determination 11.06.310
Financial statement 11.06.300
Granting 11.06.320
Time limit for consideration by Board of Aldermen 11.06.160
Urban Redevelopment Corporations Law adopted 11.06.360
Work inspection reports
Certificate of completion 11.06.260
Contents 11.06.250
Relocation Policy 11.05.010 et seq.
See: RELOCATION POLICY
Rendering plants 11.30.010 et seq.
See: RENDERING PLANTS
Residential landlord-tenant relations; evictions
Definitions 11.105.010
Eviction, illegal 11.105.020
Illegal to collect rent for period while tenant is illegally evicted 11.105.050
Nonexclusivity of remedy 11.105.040
Nonwaiverability 11.105.030
Penalty for violation 11.105.060
Right to counsel program for residential tenants facing eviction
Appropriation; establishment of program 11.106.010
Coordinator responsibilities 11.106.030
Definitions 11.106.020
Designated organizations 11.106.050
Engagement and education 11.106.070
General provisions of right to counsel for tenants in covered proceedings 11.106.040
Implementation 11.106.060
Rodent, insect and pest control 11.08.010 et seq.
See: RODENT, INSECT AND PEST CONTROL
Rooming house or hotel detrimental to neighborhood
After denial of permit, petition 11.72.060

HEALTH AND SAFETY (Cont'd.)
Rooming house or hotel detrimental to neighborhood (Cont'd.)
Conduct, hearing 11.72.040
Determination of detrimental operation of premises 11.72.050
Hearing notice 11.72.020
Permit reissuance for premises after revocation 11.72.070
Petition for hearing 11.72.010
Verification of petition signatures 11.72.030
Workshop or residence facility exempted 11.72.080
Satellite dish antennas, satellite antennas or other similar devices 11.80.010 et seq.
See: SATELLITE DISH ANTENNAS, SATELLITE ANTENNAS OR OTHER SIMILAR DEVICES
Smoke Free Air Act 11.31.010 et seq.
See: SMOKE FREE AIR ACT
Smoking 11.32.010 et seq.
See: SMOKING
Solid waste disposal 11.02.010 et seq.
See: SOLID WASTE DISPOSAL
Solid Waste Management District 11.03.010 et seq.
See: SOLID WASTE MANAGEMENT DISTRICT
Swimming pool regulations 11.79.010 et seq.
See: SWIMMING POOL REGULATIONS
Tire storage
Abatement of violations 11.70.090
Administration and enforcement 11.70.020
Cease sales list 11.70.140
Definitions 11.70.010
Department of Public Safety duties and responsibilities 11.70.040
Judicial review of suspension and revocation of permits 11.70.130
Penalty for violation 11.70.150
Prohibited activities 11.70.030
Suspension and revocation of permits and registration 11.70.120
Tire Dealers 11.70.050
Waste tires
Haulers 11.70.100
Limited storage 11.70.110
Sites 11.70.060
Closure plan 11.70.080
Storage 11.70.070
Transportation of radioactive materials
Certificate of emergency transportation
Application 11.15.030
Approval of application 11.15.040
Fee 11.15.020
Specifications 11.15.050
Definitions 11.15.010

HEALTH AND SAFETY (Cont'd.)
Unpaid leave for victims of domestic violence, sexual violence, and stalking
Definitions 11.100.010
Effect on other Laws and Employment Benefits 11.100.080
Employment and Benefits 11.100.030
Leave Requirements 11.100.020
Notification 11.100.070
Penalty 11.100.060
Reasonable Accommodations 11.100.050
Violations 11.100.040
Weeds 11.04.010 et seq.
See: WEEDS
Yard waste
Definitions 11.85.010
Penalty for violation 11.85.030
Regulations 11.85.020

HEALTH AND SANITATION
Board of public service Charter Art. XIII-14-C

HENRY W.KIEL AUDITORIUM
Appointment of subordinate officers and employees 3.56.200
Budget 3.56.210
Collections to be deposited with Treasurer 3.56.220
Manager
Appointment 3.56.180
Duties 3.56.190
Municipal Auditorium Commission 3.56.150 et seq.
See: MUNICIPAL AUDITORIUM COMMISSION
Payment of accounts 3.56.230
Special occupancy 3.56.240
To be known as Henry W. Kiel Auditorium, municipal auditorium 3.56.140

HEREAFTER AND HERETOFORE
General provisions
Ordinances 1.28.080

HIGHWAYS
Definitions and rules of construction 1.08.240

HOLIDAYS AND SUNDAYS
General provisions
Holidays
Martin Luther King Day 1.32.010
Veterans Day 1.32.020

HORSE-DRAWN VEHICLES
Application for certificate of convenience and necessity—Requirements 8.43.030
Definitions 8.43.010
Determination by Board—Application hearing 8.43.040

HORSE-DRAWN VEHICLES (Cont'd.)
Discontinuance of service—Transfer of certificates 8.43.060
Fees 8.43.050
Insurance required—Accident report 8.43.100
Offices required 8.43.080
Operation requirements generally 8.43.020
Penalty for violation 8.43.130
Rules and regulations promulgation 8.43.110
Safety and health 8.43.090
Stops and stands 8.43.120
Suspension or revocation of certificate of convenience and necessity and licenses 8.43.070

HOSPITAL FUND
Established—Use 5.34.010
Transfer of funds 5.34.020

HOSPITAL REVENUE FUND
Deposits 5.40.020
Established 5.40.010
Excess funds 5.40.040
Expenditures 5.40.030

HOSPITALS AND PHYSICIANS
Board of public service Charter Art. XIII-14-C
Dispensaries
Free medicines for indigent persons 12.32.020
Medical attendance at City Jail 12.32.040
Patient records 12.32.030
Purpose 12.32.010
Division of Hospitals 12.08.010 et seq.
See: DIVISION OF HOSPITALS
Harry S. Truman Restorative Center
Additional properties
Isolation Hospital 12.20.030
St. Louis Nursing Home 12.20.020
Admission rules 12.20.060
Designated 12.20.010
Indigent patients 12.20.040
Minors 12.20.050
Records 12.20.070
Hospital staffs
Appointment—Qualifications—Remuneration 12.12.010
Clinics—Lectures 12.12.070
Patients not to be subject of lectures against their will 12.12.040
Powers—Duties 12.12.030
Psychopathic department 12.12.090
Records, patients' 12.12.080
Resident staffs 12.12.050
Sending physician to home of person suspected insane 12.12.100

HOSPITALS AND PHYSICIANS (Cont'd.)
Hospital staffs (Cont'd.)
Students permitted to attend lectures 12.12.060
Term 12.12.020
Written report for all psychopathic patients 12.12.110
Miscellaneous hospital provisions
Bonds 12.04.010
Coin-operated television sets
Agreement 12.04.050
Bids 12.04.060
Employee meals 12.04.020
Fine—Towing vehicle—Parking 12.04.100
Malcolm Bliss Mental Health Center 12.04.030
Max C. Starkloff Hospital 12.04.040
Parking—Permit
Effect 12.04.080
Issuance 12.04.070
Required 12.04.090
Parking—Watchmen
Appointment 12.04.110
Violation notices 12.04.120
Nurses 12.52.010 et seq.
See: NURSES
Payment by patients at City hospitals
Collection of charges 12.48.010
Personnel—Bond 12.48.020
Sick claim blanks 12.48.030
Private hospitals
Change in staff 12.36.060
Grounds for revocation of permit 12.36.090
Inspection of premises 12.36.100
Permit
Application 12.36.020
Building inspection 12.36.030
Issuance 12.36.040
Nontransferable 12.36.050
Required 12.36.010
Resident physician required 12.36.070
Rules and regulations 12.36.080
Psychiatric clinic
Advisory board
Absence 12.24.040
Members—Term 12.24.020
Reports 12.24.030
Established—Duties 12.24.010
Registration of physicians, surgeons and midwives
Druggists 12.44.030
Information required for registration of physicians and surgeons 12.44.010
Midwives 12.44.040
When registration may be refused 12.44.020

HOSPITALS AND PHYSICIANS (Cont'd.)
Reporting gunshot and knife wounds
Failure to report 12.56.020
Required, report 12.56.010
Robert Koch Tuberculosis Hospital
Established 12.16.010
Policies, rules and regulations 12.16.020
Section of Social Service and Investigation 12.40.010 et seq.
See: SECTION OF SOCIAL SERVICE AND INVESTIGATION
Snodgrass Laboratory
City bacteriologist 12.28.010

HOUSING CONSERVATION DISTRICTS
Administration—Appeals 25.56.150
Building division information technology fund—Established 25.56.140
Certificate of Inspection
Exceptions—Issuance 25.56.060
Fees 25.56.070
Issuance 25.56.050
Requirements—Exception 25.56.040
Change in registration information 25.56.120
Change of utility service—Notification 25.56.100
City Housing Conservation Program 25.56.010
Code official to enforce chapter 25.56.030
Condemnation for occupancy 25.56.090
Definitions 25.56.020
False statements prohibited—Occupancy load 25.56.160
Interiors of buildings 25.56.180
Penalties for violation 25.56.170
Registration of rental dwelling units required 25.56.110
Reinspection of premises for which valid Certificate of Inspection exists 25.56.080
Reporting by Code Official 25.56.130

HUMAN DEVELOPMENT CORPORATION
Designated as Community Action Agency 3.42.010
Mayor's duties for acceptance 3.42.020

HUMAN RESOURCES PLANNING AND DEVELOPMENT OFFICER
Appointment 3.36.635
Duties 3.36.640
Office established 3.36.630

— I —

IDENTIFICATION
General provisions 1.16.010 et seq.
See: GENERAL PROVISIONS

IDENTIFICATION (Cont'd.)
Municipal identification card program (gateway card) 3.165.010 et seq.
See: MUNICIPAL IDENTIFICATION CARD PROGRAM (GATEWAY CARD)

IMPROVED WHARF FUND
Appropriation use 5.38.020
Established 5.38.010

IMPROVEMENT BONDS AND FUNDS
Appropriations for payment from general revenue Charter Art. XXIV-2
Issuance; source of payment; provisions to be supplied by ordinance Charter Art. XXIV-1
Local improvement fund authorized Charter Art. XXIV-3
Payment as work progresses, appropriation of fund for Charter Art. XXIV-4
Special tax bills issued under provisions of this article Charter Art. XXIV-5

INCORPORATION
Body corporate; seal; enumeration of powers Charter Art. I-1
Earnings tax Charter Art. I-4
Enumeration not exclusive; scope of grant of power Charter Art. I-2
Wards Charter Art. I-3

INFORMATION DATE BUREAUS
Application 8.44.030
Definitions 8.44.010
Inspections and investigations 8.44.060
Investigation—Permit issued 8.44.040
License and permit required 8.44.020
Minors
Misrepresentation of age 8.44.080
Restrictions 8.44.070
Persons not allowed on premises 8.44.090

INFORMATION TECHNOLOGY SERVICES AGENCY
Director—Appointment—Staff 3.43.020
Established 3.43.010
Functions and responsibilities of agency 3.43.030
Funding 3.43.040
Minority and women owned business participation 3.43.050

INITIATIVE
Amendment or repeal of initiated ordinance Charter Art. V-6
Certification of petition; submission of proposed ordinance to voters Charter Art. V-4
Charter Commission Charter Art. V-7

INITIATIVE (Cont'd.)
Form of ballot; adoption of ordinance; publication Charter Art. V-5
Petition required Charter Art. V-2
Procedure employed in recall to be followed Charter Art. V-3
Use authorized Charter Art. V-1

INSPECTORS OF HUMAN FOOD PRODUCTS
Bond 11.38.020
Duties generally 11.38.030
Powers—Condemnation of unwholesome food 11.38.040

INSURANCE ADJUSTORS
Applicability of chapter 8.46.060
Contracts 8.46.040
Fee payments by insurance companies 8.46.050
License—Required 8.46.020
Penalty for violation 8.46.070
Public insurance adjustor defined 8.46.010

INTERNATIONAL FIRE CODE
Adoption 25.06.020
Amendments 25.06.030
Penalty 25.06.040

INTERNATIONAL PROPERTY MAINTENANCE
Adoption 25.32.010
Amendments 25.32.020
Penalty 25.32.030

ISSUANCE OF BONDS
City bonds Charter Art. XVII-1 et seq.
See: CITY BONDS
General provisions
Ordinances
Proposed board bill with associated costs requiring fiscal note 1.28.090
Improvement bonds and funds Charter Art. XXIV-1 et seq.
See: IMPROVEMENT BONDS AND FUNDS

— J —

JOINT AUTHORITY
Definitions and rules of construction 1.08.100

JUDGES
Appointment 3.08.070
Judges Charter Art. XII-1
Powers and jurisdiction 3.08.090
Qualifications 3.08.080

JUNKYARDS
Defined, junk and junkyard 8.50.010
Enforcement 8.50.060

JUNKYARDS (Cont'd.)
Exclusion 8.50.020
Fences
Maintenance 8.50.040
Required 8.50.030
Penalty for violation 8.50.070
Safety requirements 8.50.050

— L —

LACLEDE-FOREST PARK-NEWSTEAD PARKING DISTRICT
Definitions 17.102.010
Designation of restricted parking zones 17.102.020
Issuance, permit 17.102.040
Penalty for violation 17.102.050
Permit use 17.102.030

LAND REUTILIZATION AUTHORITY
Affirmative defense 3.82.030
Amending effect of chapter 3.82.040
Conveyance of title 3.82.010
Imposition of obligation 3.82.020

LAUNDRIES AND DRY CLEANING
Defined, laundry 8.52.070
Definitions, dry cleaning 8.52.010
Dry cleaning license
Application 8.52.030
Display 8.52.050
Required 8.52.020
Laundry license
Application 8.52.090
Display 8.52.110
Required 8.52.080
Qualified attendant required 8.52.060

LAW DEPARTMENT
Apportionment of salaries of attorneys and employees of Law Department engaged in bond issue projects 3.10.060
Chief clerk to be notary public 3.10.070
City Counselor 3.10.020 et seq.
See: CITY COUNSELOR
Composition 3.10.010, Charter Art. X-1
Powers and duties of city counselor; compensation Charter Art. X-2
Qualifications of city counselor and appointees Charter Art. X-3
Special counsel 3.10.050

LEAD POISONING
Appeals 11.22.200
Building permits; inspection and risk assessment; inspection and work requirements 11.22.230
Certification, lead inspection 11.22.170

LEAD POISONING (Cont'd.)
Codification 11.22.320
Definitions 11.22.030
Duties of independent certified supervisor 11.22.250
Effective date; emergency clause 11.22.310
Enforcement 11.22.190
Exposed surfaces, treatment of 11.22.140
Inspections
Generally 11.22.080
Reported addresses 11.22.090
Required when other inspections conducted 11.22.100
Samples, reports and 11.22.110
Lead abatement contractor listing maintained by Building Commissioner 11.22.290
Lead abatement project; contractor notice to building commissioner; fine 11.22.240
Lead abatement project
Periodic inspection 11.22.270
Lead-bearing substances
Manufacture and sale of articles 11.22.050
Use 11.22.040
Notice—Violation—Condemnation—Nuisance—Injunctions 11.22.120
Only lead abatement contractors perform abatement projects; exception for own home 11.22.220
Other proceedings 11.22.160
Penalty for violation 11.22.210
Post-abatement clearance procedures 11.22.280
Public complaints received by the Division 11.22.260
Purpose 11.22.020
Reports 11.22.070
Retaliatory eviction 11.22.150
Rights of action 11.22.180
Severability clause 11.22.300
Title 11.22.010
Treatment required 11.22.130
Warning labels 11.22.060

LEGAL SERVICES
Bureau directors may be one person 3.16.040
Legal Aid Bureau—Director and assistants—Duties 3.16.030
Public Defender and Legal Aid Advisory Board 3.16.050
Public Defender Bureau
Director and assistants—Duties 3.16.010
When services discontinued 3.16.020
Reports, bureau 3.16.060

LIBRARIES—DEPOSIT OF CITY REPORTS
Archival library
Deposit of documents 3.50.040
Disposition of records 3.50.050

LIBRARIES—DEPOSIT OF CITY REPORTS (Cont'd.)
Archival library (Cont'd.)
Establishment 3.50.030
Municipal reference library
Depository of publications and reports 3.50.020
Designated 3.50.010
Nonessential records 3.50.025
St. Louis Public Library—Designated City information center 3.50.060

LICENSES AND PERMITS
Licenses taxes Charter Art. XX-1 et seq.
See: LICENSES TAXES

LICENSES TAXES
Subjects of taxation Charter Art. XX-1
Tax on branch establishments Charter Art. XX-2
Uniform tax for each class Charter Art. XX-3

LITTERING
Definitions 11.18.010
Dropping litter from aircraft 11.18.150
Duty to keep sidewalks, parkways, gutters, streets and alleys free of litter and objects 11.18.060
Enforcement 11.18.220
Handbill distribution 11.18.200 et seq.
See: HANDBILL DISTRIBUTION
Household goods in sidewalk or street 11.18.140
Lakes, rivers, and fountains 11.18.100
Nurserymen 11.18.120
Occupied private property 11.18.030
Parking stations 11.18.110
Parks 11.18.090
Penalty for violation 11.18.240
Persons in vehicles throwing litter 11.18.070
Placement of receptacles to prevent scattering 11.18.050
Posting notices 11.18.160
Prosecution procedures 11.18.230
Public places 11.18.020
Snow removal 11.18.210
Throwing litter—Penalty for violation 11.18.075
Truck loads causing litter 11.18.080
Vacant lots 11.18.040
Vending operations 11.18.130

— M —

MANUFACTURERS
Ad valorem tax 8.54.020
Defined 8.54.010
Enforcement 8.54.180
Failure to file statements and pay fees 8.54.120
Fee—Payment—License 8.54.040
License—Blanks
Form 8.54.050

MANUFACTURERS (Cont'd.)
License—Blanks (Cont'd.)
Stubs 8.54.060
Manufacturer account books 8.54.150
New manufacturers 8.54.140
Penalty for failure to pay fees and taxes 8.54.130
Permit required for certain products 8.54.160
Publication of chapter 8.54.170
Statement
Confidential—Inspection 8.54.110
Delinquent—Penalty 8.54.080
False—Misdemeanor 8.54.090
Penalty—False 8.54.100
Required 8.54.070

MARKETS
City Markets 11.44.010 et seq.
See: CITY MARKETS
Open Air Farmers and Produce Market 11.44.360 et seq.
See: OPEN AIR FARMERS AND PRODUCE MARKET

MASSAGE THERAPISTS AND MASSAGE FACILITIES
Advertising 8.55.060
Business license, massage therapist 8.55.020
Definitions 8.55.010
Inspections, immediate right of entry 8.55.070
No transfer of license 8.55.040
Operating regulations 8.55.050
Persons under age 18 8.55.110
Renewal of licenses 8.55.100
Required, massage facility business license 8.55.030
Suspension/revocation and promulgation of rules 8.55.080
Therapeutic massage schools 8.55.090

MAYOR
Appointments
Purpose of Sections 3.04.060 and 3.04.070 3.04.080
Vacancies to conform 3.04.070
Ward representation 3.04.060
Authority to summons and examine witnesses, issue warrants 3.04.030
By whom vacancy in office filled Charter Art. VII-5
Devolution of duties in event of disability or absence Charter Art. VII-3
Duty when served with process 3.04.050
Elections Charter Art. II-1 et seq.
See: ELECTIONS
Installation 3.04.010
Powers and duties; compensation Charter Art. VII-1
Powers in case of riot 3.04.040

MAYOR (Cont'd.)
Qualifications Charter Art. VII-2
Remit fines, grant stay of execution, authority to 3.04.020
Removal from office Charter Art. VII-4

MAYOR'S CONTINGENT FUND
Appropriation 5.42.010
Report
Available to public 5.42.030
Filing required 5.42.020

MEAT AND MEAT PRODUCTS
Accommodations and facilities 11.48.640
Adulteration
Penalty for violation 11.48.130
Prohibited 11.48.120
Board, rules of 11.48.100
Brands 11.48.350
Cleaning utensils and equipment 11.48.600
Condemnation, retention and holding 11.48.400
Construction of equipment 11.48.660
Counterfeiting 11.48.410
Definitions 11.48.010
Denaturing and labeling inedible meat 11.48.690
Display and refrigeration 11.48.110
Disposal of liquid and solid wastes 11.48.630
Disposition of fees and overtime charges 11.48.490
Employee cleanliness and health 11.48.670
Fees, inspection
Deposits 11.48.480
Processing plants outside City 11.48.460
Slaughtering plants outside City 11.48.450
Storage facilities outside City 11.48.470
Floors 11.48.520
General sanitation 11.48.510
Handling and storage of edible meat 11.48.680
Handwashing facilities 11.48.570
Horse or mule meat 11.48.160
Hours of operation 11.48.430
Insects and vermin 11.48.540
Inspections
Ante-mortem 11.48.250
Brand 11.48.230
Facilities 11.48.300
General sanitation 11.48.240
Inspector's accommodations 11.48.310
Personnel 11.48.290
Post-mortem 11.48.260
Reinspection 11.48.270
Vehicles and containers 11.48.320
Withdrawal 11.48.280
Inspector's work time 11.48.440
Interference with inspection or sampling 11.48.380

MEAT AND MEAT PRODUCTS (Cont'd.)
Labels 11.48.340
License
Permit prerequisite 11.48.030
Retail meat shops 11.48.020
Lighting and ventilation 11.48.550
Meat Control Section 11.48.170 et seq.
See: MEAT CONTROL SECTION
Mileage charges 11.48.500
Official numbers 11.48.330
Operation, separation of 11.48.580
Penalty for violation 11.48.700
Pens 11.48.590
Permit
Application 11.48.070
Certification of health officer 11.48.080
Establishments outside City
Obtaining 11.48.060
Required 11.48.050
Required 11.48.040
Revocation—Nontransferable 11.48.090
Poisonous utensils and equipment 11.48.610
Premises 11.48.620
Prepackaged meat and meat products 11.48.140
Retail meat shops to be kept clean 11.48.150
Right of entry 11.48.370
Rules and regulations 11.48.420
Sampling 11.48.390
Separate facilities for cleaning utensils and equipment 11.48.650
Walls and ceilings 11.48.530
Water supply 11.48.560
Work orders 11.48.360

MEAT CONTROL SECTION
Accountants 11.48.210
Chief meat inspector 11.48.180
Clerks and stenographers 11.48.220
Established 11.48.170
Sanitarians 11.48.200
Veterinarians 11.48.190

MECHANICAL CODE
Action on permit application 25.10.290
Adopted 25.03.010
Amendments 25.03.020, 25.10.250
An apprentice pipefitter, qualifications for 25.10.130
Applications 25.10.190
Appointment of mechanical inspectors 25.10.160
Automatic revocation of permit 25.10.310
Board of Examiners for Mechanical Contractors 25.10.030
Cancellation, permit 25.10.270
Certificate of Insurance 25.10.100

MECHANICAL CODE (Cont'd.)
Change in use 25.10.490
City of Saint Louis projects 25.10.340
Code, Compliance with 25.10.330
Compliance and notification to department, time for 25.10.440
Concealing work 25.10.370
Continuation 25.10.110
Credentials 25.10.230
Defective mechanical systems 25.10.480
Defined—Mechanical Code 25.10.010
Department records 25.10.240
During installation, inspection 25.10.360
Fees, mechanical certification 25.10.090
Final inspections 25.10.380
For violation, penalty 25.10.540
Inspections 25.10.220
Journeymen pipefitters 25.10.120
Maintenance 25.10.510
Mechanical Inspection Supervisor 25.10.150
Mechanical Regulations and Inspections Section 25.10.140
Minor repairs 25.10.500
Notice 25.10.390
Of violations, notice 25.10.430
Orders, notices and 25.10.210
Payment of fees 25.10.320
Penalty 25.03.030
Permits 25.10.200
Powers and duties of the Board of Examiners 25.10.070
Previous permit approvals 25.10.300
Provisions to be liberally construed 25.10.530
Qualifications for mechanical contractors 25.10.080
Reinspection 25.10.400
Responsibility 25.10.520
Review Committee 25.10.040
Right of entry 25.10.410
Rule making authority 25.10.170
Scope of Code 25.10.020
Secretary of the Board—Duties 25.10.050
Stop work order notice 25.10.450
Suspensions and cancellations 25.10.180
Term of office—Compensation 25.10.060
Time limit 25.10.260
Unlawful continuance 25.10.350, 25.10.460
Vacating structures 25.10.470
Violation 25.10.420
Work not in compliance 25.10.280

MERAMEC HILLS
Designated 3.36.280
Supervision 3.36.285

MERCHANTS
Account books 8.56.040
Ad valorem tax
Deposits 8.56.120
Levied 8.56.100
Payment 8.56.110
Compliance 8.56.030
Defined, merchant 8.56.010
Enforcement 8.56.200
License
Blanks
Form 8.56.160
Stubs 8.56.170
Nonassignable 8.56.140
Required 8.56.130
New merchants 8.56.020
Statement
Confidential 8.56.090
Delinquent 8.56.060
False—Penalty 8.56.070
Misdemeanor—False 8.56.080
Required 8.56.050
Taxes and fees
Delinquent 8.56.180
Uses 8.56.190

MERCHANTS AND MANUFACTURERS TAX EQUALIZATION BOARD
Duties 8.04.020
License Collector to attend meetings—Records open for inspection 8.04.060
Oath 8.04.050
Powers 8.04.030
Preparation and certification of payroll 8.04.070
Quorum 8.04.040
Sessions 8.04.010

MILITARY
General provisions
Holidays
Veterans Day 1.32.020

MILK
Acidified milk and milk products defined 11.46.020
Adulterated or misbranded milk or milk products 11.46.350
And/or defined 11.46.040
Animal health 11.46.430
Board of public service defined 11.46.050
Bulk tank truck operator defined 11.46.060
Buttermilks defined 11.46.070
Collection and delivery from farms to milk plants or transfer stations 11.46.510

MILK (Cont'd.)
Concentrated milk, concentrated milk products and frozen milk concentrate defined 11.46.080
Creams defined 11.46.090
Cultured milk products and cottage cheeses defined 11.46.100
Dairy farm defined 11.46.110
Defined, adulterated milk and milk products 11.46.030
Definitions 11.46.010
Distributor defined, milk 11.46.210
Enforcement 11.46.500
Examination 11.46.390
Fees, inspection 11.46.530
Flavored milk or milk products defined 11.46.120
Fortified milk and milk products defined 11.46.130
From points beyond the limits of routine inspection, milk and milk products 11.46.460
Future dairy farms and milk plants 11.46.470
Grade A dry milk products defined 11.46.140
Half and halves defined 11.46.150
Hauler defined, milk 11.46.220
Health Authority or health officer defined 11.46.160
Homogenized milk defined 11.46.170
Inspection of dairy farms and milk plants 11.46.380
Interference with health officer 11.46.520
Labeling 11.46.370
Laboratories defined 11.46.180
Lowfat milk defined 11.46.190
Milk defined 11.46.200
Misbranded milk or milk products defined 11.46.260
Optional ingredients defined 11.46.270
Pasteurization defined 11.46.280
Penalty for violation 11.46.540
Permits 11.46.360
Person defined 11.46.290
Personnel heath 11.46.480
Plant and/or receiving station defined, milk 11.46.230
Procedure when infection is suspected 11.46.490
Producer defined, milk 11.46.240
Products defined, milk 11.46.250
Reconstituted milk and milk products defined 11.46.300
Sanitation
For Grade A pasteurized milk and milk products 11.46.420
For Grade A raw milk for pasteurization 11.46.410
Sanitization defined 11.46.310
Skim milk or skimmed milk defined 11.46.320
Standards 11.46.400
Storing—Vehicles—Transferring 11.46.450
Transfer station defined 11.46.330
Vitamin D milk and milk products defined 11.46.340
Which may be sold, milk and milk products 11.46.440

MINIATURE PONY TRACKS
Definitions 8.58.010
Permit
Application—Fee 8.58.040
Required 8.58.020
Revocation 8.58.030
Premises 8.58.050

MINING
Applicability of chapter 8.60.030
Plat, map and diagram
Incorrect 8.60.020
Required—Information 8.60.010

MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE PROGRAM
Approval of rules and regulations 8.118.080
Business Advisory Council (BAC) and the Small Business Program 8.118.070
Compliance tracking, monitoring and reporting 8.118.060
Definitions 8.118.020
Provisions re 8.118.010
Rules and regulations 8.118.040
Staff and staff training, Minority And Women-Owned Business Enterprise Program 8.118.050
Statement of policy 8.118.030

MINORS
Public peace, morals and welfare 15.02.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE

MISCELLANEOUS PROVISIONS
Appeals by city in judicial proceedings Charter Art. XXV-8
Approval of official bonds; faithful performance required Charter Art. XXV-4
Assessments for planting shade trees and removal of snow, ice, rubbish and weeds Charter Art. XXV-3
Changes in administrative provisions Charter Art. XXV-1
City surveyors Charter Art. XXV-1
Construction of word "office." Charter Art. XXV-15
Contracts, execution of city's Charter Art. XXV-9
Execute process for boards and officers, city marshal to Charter Art. XXV-13
Maximum work day and minimum wage for mechanics and laborers Charter Art. XXV-14
Mayor's contingent fund Charter Art. XXV-6
Ordinances in aid of state law Charter Art. XXV-17
Taxation of raw materials and finished products, tools and machinery, and sales Charter Art. XXV-2
Title "board of election commissioners.", construction of Charter Art. XXV-7

MISCELLANEOUS PROVISIONS (Cont'd.)
To be open to mayor, comptroller and board of aldermen, city records Charter Art. XXV-10
When additional official bond required Charter Art. XXV-5
Where city's notices, etc., published Charter Art. XXV-12
Words "person" or "persons.", construction of Charter Art. XXV-16

MONTH
Definitions and rules of construction 1.08.110

MORGUE
Daily reports 11.62.430
Duties of superintendent 11.62.410
Established 11.62.390
Expense account 11.62.450
Officers and employees 11.62.400
Requisitions for supplies 11.62.440
Unidentified bodies 11.62.420

MOTOR BUSES
Additional regulations 8.62.170
Annual statement 8.62.140
Buses to and from points outside the City—Receiving and discharging points 8.62.280
Definitions 8.62.010
License
Application 8.62.070
Plate
Duplicate 8.62.100
Posting 8.62.110
Use—Counterfeit 8.62.120
Tax—Other City and state taxes not exempted 8.62.090
Mileage basis, operation on 8.62.210
Operators 8.62.250
Permit
Additional buses on established routes 8.62.050
Application—Hearing 8.62.030
Bond 8.62.040
Revocation 8.62.060
Rate of fare
Established 8.62.180
Lower than maximum 8.62.200
Sign 8.62.190
Records 8.62.150
Regulations, operative 8.62.260
Required, license and permit 8.62.020
Route and destination sign 8.62.220
Sale or transfer 8.62.130
Sanitation and mechanical condition 8.62.240
Stopping or standing 8.62.230

MOTOR BUSES (Cont'd.)
Tax, operating 8.62.160
Termini established—Buses operating to and from points outside the City 8.62.270

MOTOR CARRIER TRANSPORTATION BROKERS
Defined 8.64.010
License
Application 8.64.030
Change of address 8.64.070
Display 8.64.060
Required 8.64.020
Separate 8.64.040
To keep register, License Collector 8.64.080

MOTOR FUEL DEALERS
Deceiving purchaser 8.66.160
Defined, motor fuel 8.66.010
Invoice or sales ticket 8.66.070
License
Application—Bond 8.66.030
Fees—Payment 8.66.050
Operating without 8.66.060
Required 8.66.020
Records—Statements
Investigation 8.66.090
Required 8.66.080
Signs and placards
Contents 8.66.150
Restricted 8.66.140
Statements
False 8.66.120
Form 8.66.100
Late 8.66.110
Tank installation
Inspection 8.66.180
Permit fee 8.66.170
Trade name, octane content and price to be displayed 8.66.130

MOTORCYCLES AND MOTORIZED BICYCLES
Clinging to other vehicles 17.18.040
Equipment for motorcycle or motorized bicycle riders 17.18.060
Footrests and handlebars 17.18.050
Motorized bicycles—Restrictions 17.18.070
Operating motorcycles or motorized bicycles on roadways laned for traffic 17.18.030
Riding on motorcycles or motorized bicycles 17.18.020
Seizure of motorized bicycles 17.18.080
Traffic laws apply to motorcyclists and motorized bicyclists 17.18.010

MOTORIZED SCOOTERS
Definitions 17.37.010

MOTORIZED SCOOTERS (Cont'd.)
Equipment required 17.37.030
Exemptions from this Code provisions 17.37.040
Operation
Motor capable of disengagement 17.37.050
Right-hand curb 17.37.060
Penalty for violation 17.37.080
Restrictions, operator 17.37.070
Rights, operator 17.37.020

MUNICIPAL AUDITORIUM COMMISSION
Duties—Charges 3.56.170
Established—Members 3.56.150
Organization 3.56.160

MUNICIPAL BRIDGE FUND
Deposits—Expenditures 5.46.010

MUNICIPAL COURTS
Public buildings and property 3.56.010 et seq.
See: PUBLIC BUILDINGS AND PROPERTY

MUNICIPAL IDENTIFICATION CARD PROGRAM (GATEWAY CARD)
Card content, details and design 3.165.030
Definitions 3.165.010
Municipal identification program established 3.110.020
Program requirements and implementation 3.165.040

— N —

NEIGHBORHOOD IMPROVEMENT DISTRICTS
Acceptance of the Neighborhood Improvement District Act 3.87.010
Consideration and establishment of district—Proposed assessments—Hearing 3.87.070
Definitions 3.87.030
District initiation 3.87.060
Nondiscrimination and disadvantaged business enterprises participation 3.87.090
Obligation bonds, special and special assessments 3.87.040
Preliminary project statement 3.87.050
Rules of construction 3.87.020
Special assessments 3.87.080

NOISE
Band music in streets 15.50.120
Bells for attracting people to auctions, use of 15.50.140
Blowing horns 15.50.020
Construction and demolition
Definitions 15.50.080
Prohibited—When 15.50.081
Drums and loud speakers 15.50.100
Exhaust discharge 15.50.070
Locomotive bells 15.50.150

NOISE (Cont'd.)
Near schools, hospitals and churches, noises 15.50.090
Penalty for violation of Sections 15.50.030 and 15.50.031 15.50.032
Pets 15.50.040
Playing sound devices in motor vehicles prohibited—When 15.50.031
Prohibited 15.50.010
Sections 15.50.080 and 15.50.081, penalty for violation of 15.50.082
Steam, use of—Blowing whistles 15.50.060
Use of vehicle 15.50.050
Vehicle impoundment 15.50.033
Violation of Sections 15.50.010—15.50.100, penalty for 15.50.110
When—Playing of sound devices prohibited 15.50.030

NUISANCES
Abatement
Authorization to enjoin nuisances 11.58.170
Bids for abating nuisances 11.58.040
Building and premises inspected for nuisances 11.58.030
City's right to recover cost 11.58.060
Defined, nuisance 11.58.010
Health Commissioner's powers 11.58.020
Interested persons may appear at hearings 11.58.140
Misdemeanor not to abate 11.58.050
Pro rata distribution of cost of abating nuisance located on property of more than one owner 11.58.150
Record of proceedings 11.58.130
Right of entry 11.58.160
With notice
Cost 11.58.120
Hearing 11.58.090
Method 11.58.110
Order 11.58.100
Without notice
Cost 11.58.080
Method 11.58.070
Conditions enumerated
Bone, fat or glue business 11.58.190
Discharge of filthy or offensive water 11.58.240
Garbage, vegetable waste, litter and filth 11.58.270
Lots containing offensive water 11.58.230
Operation of business for dealing in sexual obscenity 11.58.280
Soap, and other factories 11.58.200
Unclean drains, garbage boxes and ditches 11.58.210
Waste, rags, barrels and other refuse 11.58.260
Water seepage from defective hydrants or water pipes 11.58.220

NUISANCES (Cont'd.)
Conditions enumerated (Cont'd.)
Wells or cisterns 11.58.250

NUMBER, NUMBERING
Definitions and rules of construction 1.08.120
General provisions
Ordinances
Numbered—Preserving 1.28.010

NURSES
Assistant superintendents of nurses and head operating room nurse 12.52.020
Dietitian 12.52.060
Female day and night attendants 12.52.040
Graduate nurses 12.52.030
Nurses' Advisory Board 12.52.110 et seq.
See: NURSES' ADVISORY BOARD
Organization of nursing department of City infirmary 12.52.080
Post-graduate nurses 12.52.090
Pupil nurses 12.52.050
School of nursing 12.52.100
Social service worker 12.52.070
Superintendent of Nurses 12.52.010
Tuition loans
Death or disability 12.52.270
Established 12.52.200
Extension 12.52.260
Former students
Reimbursements 12.52.230
Written agreements 12.52.240
Interest 12.52.250
Security or endorsement 12.52.220
Written agreement 12.52.210

NURSES' ADVISORY BOARD
Appeals 12.52.190
Appointment—Term 12.52.120
Consultation 12.52.170
Established 12.52.110
Graduation duties 12.52.180
Officers—Quorum 12.52.140
Qualifications 12.52.130
Recommendations to Hospital Commissioner 12.52.150
Reports 12.52.160

— O —

OATH, AFFIRMATION, SWEAR OR SWORN
Definitions and rules of construction 1.08.130

OFFENSES AND MISCELLANEOUS PROVISIONS
General penalty 1.12.020 et seq.
See: GENERAL PENALTY

OFFENSES AND MISCELLANEOUS PROVISIONS (Cont'd.)
General provisions
Ordinances
Effect of repeal
On offense or penalty 1.28.070

OFFICE OF CONSUMER AFFAIRS
Citizens' consumer advisory committee 3.36.685
Compensation 3.36.720
Development of comprehensive consumer legislation 3.36.695
Duties 3.36.690
Established—Supervisor 3.36.680
Investigations 3.36.710
Private local groups 3.36.705
Representation for consumer interests 3.36.715
Special research projects 3.36.700

OFFICE OF FISCAL EMPOWERMENT
Apply for and accept grants and enter into service agreements, authority to 3.130.020
Authority to enter into and execute sponsorship agreements 3.130.030
Established 3.130.010

OFFICE OF THE DISABLED
Advisory council
Appointment 3.36.745
Authority and responsibility 3.36.760
Meetings 3.36.750
Quorum—Rules and regulations 3.36.755
Commissioner—Appointment—Authority 3.36.735
Established 3.36.730
Powers and duties 3.36.740

OFFICERS AND EMPLOYEES
Appointments to be made by mayor; tenure Charter Art. VIII-1
Board of aldermen Charter Art. IV-1 et seq.
See: BOARD OF ALDERMEN
Board of public service Charter Art. XIII-1 et seq.
See: BOARD OF PUBLIC SERVICE
City courts Charter Art. XII-1 et seq.
See: CITY COURTS
City marshal Charter Art. XI-1 et seq.
See: CITY MARSHAL
Civil service Charter Art. XVIII-1 et seq.
See: CIVIL SERVICE
Department of finance Charter Art. XV-1 et seq.
See: DEPARTMENT OF FINANCE
Devotion of entire times to duties Charter Art. VIII-12
Elections Charter Art. II-1 et seq.
See: ELECTIONS

OFFICERS AND EMPLOYEES (Cont'd.)
For the Separation and Reorganization of the Governments of the City and County of St. Louis and the Adjustment of Their Relations. See: SCHEME
General provisions 1.04.010 et seq.
See: GENERAL PROVISIONS
Initiative Charter Art. V-1 et seq.
See: INITIATIVE
Law department Charter Art. X-1 et seq.
See: LAW DEPARTMENT
Liability of department heads for subordinates Charter Art. VIII-5
Mayor to determine questions as to division of officers' powers Charter Art. VIII-11
Mayor Charter Art. VII-1 et seq.
See: MAYOR
Oath of office Charter Art. VIII-3
Payment of salaries; maximum established; additional compensation or employment; interest in city contracts; political activity Charter Art. VIII-8
Recall of elective officers Charter Art. III-1 et seq.
See: RECALL OF ELECTIVE OFFICERS
Register Charter Art. IX-1 et seq.
See: REGISTER
Reports by executive boards and heads of departments Charter Art. VIII-10
Residence requirement Charter Art. VIII-2
Salaries and fees generally Charter Art. VIII-7
Suspension and removal from office Charter Art. VIII-9
Transitional Provisions. See: SCHEDULE
Vacancies in elective offices Charter Art. VIII-6
When official bond required; payment of premiums; failure to qualify Charter Art. VIII-4

OFFICIAL FLAG
General provisions
Provisions re
Description 1.20.010

OFFICIAL FLOWER
General provisions
Provisions re
Designated 1.18.010

OPEN AIR FARMERS AND PRODUCE MARKET
Containers 11.44.450
Definitions 11.44.360
Enforcement 11.44.520
Fires lanes 11.44.440
Grading—Pavement 11.44.400
Hearings—Revocation of permit 11.44.480
Inspections 11.44.470
Off-street parking 11.44.460

OPEN AIR FARMERS AND PRODUCE MARKET (Cont'd.)
Permit
Application 11.44.380
Investigation—Issuance 11.44.390
Required 11.44.370
Products prohibited for sale 11.44.510
Refuse containers 11.44.430
Sanitary facilities—Hose connections 11.44.410
Securing stands, counters and temporary shelters 11.44.420
Service of notices 11.44.490
Zones—Hours 11.44.500

OPERATION BRIGHTSIDE AGENCY
Agreement with Operation Brightside, Inc 22.05.030
Established; membership 22.05.010
Vested accrued benefit 22.05.020

OR, AND
Definitions and rules of construction 1.08.140

ORDINANCES, RESOLUTIONS, ETC.
Board of aldermen Charter Art. IV-1 et seq.
See: BOARD OF ALDERMEN
General provisions 1.04.040 et seq.
See: GENERAL PROVISIONS

OWNER
Definitions and rules of construction 1.08.150

— P —

PARKING COMMISSION FINANCE CORPORATION
Authority 17.99.020
Findings and determinations 17.99.010

PARKING METER COMMISSION
Functions and obligations, continuity of 17.62.055
Meetings—Absence 17.62.020
Parking Commission
City Treasurer to serve as Parking Commissioner 17.62.010
Duties 17.62.010
Established 17.62.010
Powers and duties 17.62.050
Quorum 17.62.030
Records 17.62.040

PARKING METERS
Installations and temporary removals
Contracts for parking 17.62.070
Definitions 17.62.060
Permanent meter removal 17.62.080
Removal, temporary meter 17.62.100
Temporary removal
Action on non-payment of fees 17.62.130

PARKING METERS (Cont'd.)
Installations and temporary removals (Cont'd.)
Temporary removal (Cont'd.)
Without fees 17.62.120
Parking Meter Commission 17.62.010 et seq.
See: PARKING METER COMMISSION
Payment, collection and penalties
Administration and use—Parking Meter Fund 17.62.220
Aldermen and City employees, parking permits for 17.62.160
City Hall, parking for 17.62.150
Commercial and other vehicle parking permits 17.62.320
Existing parking meters 17.62.360
Extra parking spaces—During Board or Committee meetings 17.62.170
Fees generally, parking 17.62.140
Generally—Hours of operation 17.62.180
Hampton Avenue, meters prohibited on 17.62.380
Hours for certain meters 17.62.370
Municipal parking violations, administrative adjudication system for 17.62.260
Operating meters 17.62.200
Parking Meter Division 17.62.230
Possession of parking meter keys 17.62.330
Prima facie evidence 17.62.280
Regulations generally 17.62.270
Reward for apprehension and conviction of violator of Sections 17.62.290 and 17.62.300 17.62.310
Stealing money deposited in meters 17.62.300
Supervision of parking meters and collection by City Treasurer 17.62.210
Tampering with parking meters 17.62.290
Use of money collected 17.62.350
Violation tags
Contents 17.62.240
Parking enforcement program 17.62.250

PARKING STATIONS
Additional rules and regulations 8.70.230
Annual inspection fee 8.70.090
Cars, illegal use of 8.70.170
Change of rates 8.70.180
Chapter designated 8.70.005
Compliance with building code 8.70.160
Defined 8.70.010
Driveways 8.70.150
Egress 8.70.190
Enforcement 8.70.220
Illegal use of parking station 8.70.210
Liability—Bond 8.70.200

PARKING STATIONS (Cont'd.)
Lighting
Attendants on duty 8.70.140
Required 8.70.120, 8.70.130
Permit
Application
Contents 8.70.030
Plats 8.70.040
Denial 8.70.060
Issuance—Fee 8.70.050
Required—Nontransferable 8.70.020
Suspension or revocation
Barricading lot 8.70.080
Hearing 8.70.070
Sidewalks and ground maintenance 8.70.110
Signs 8.70.100
Surface parking lots 8.70.035
Ticket to be issued 8.70.185

PARKS, RECREATION AND FORESTRY
Assembly permits, park
Bond—Type 22.40.020
Penalty for violation 22.40.040
Permit—Bond—Required 22.40.010
Political assemblies 22.40.030
Beverage bottles in public parks
Definitions 22.23.010
Offenses designated 22.23.020
Penalty for violation 22.23.040
Permitted acts 22.23.030
Board of public service Charter Art. XIII-14-B
City parks protection
Intention of board of aldermen Charter Art. XXVI-2
Real estate for use as a public park Charter Art. XXVI-1
Concessions
Advertising for bids 22.20.020
Forfeiture of privileges 22.20.050
Performance bond 22.20.030
Premises inspection 22.20.090
Rent—Premises inspection 22.20.040
Skate concessions
Advertising for bids 22.20.070
Bond 22.20.080
Terms 22.20.060
Term—Rules and regulations 22.20.010
Curfew in parks
Buder Park, curfew in 22.18.026
Chambers Park, Jet Banks Park, Norman Seay Park, Terry Park and Tiffany Park 22.18.028
Exceptions to curfew regulation 22.18.020

PARKS, RECREATION AND FORESTRY (Cont'd.)
Curfew in parks (Cont'd.)
Marie Fowler Park and Phillip J. Lucier Park 22.18.027
Mt. Pleasant Park 22.18.025
Parking motor vehicles in parks prohibited when 22.18.030
Penalty for violation 22.18.050
Persons prohibited in parks during designated hours 22.18.010
Posting of restrictions 22.18.040
Designation of parks and other recreational facilities
Adelaide M. Windsor Park 22.44.090
Aloys P. Kaufmann Park 22.44.320
American Legion Memorial Park 22.44.095
Barrett Brothers Memorial Park 22.44.100
Carondelet Lions Park 22.44.180
Charlotte Rumbold Park 22.44.120
City Block 4458 park and playground 22.44.040
City Block 5776-N park and playground 22.44.050
City Block 822 park 22.44.020
Colonel George H. Blase Park 22.44.360
Cyrus Crane Willmore Park 22.44.030
David Hickey Park 22.44.010
David Hickey Park 22.44.160
Dog park at Alabama Avenue 22.44.385
Donald E. Lasater Fountain 22.44.290
Dwight D. Eisenhower Municipal Golf Course 22.44.220
Edward Rice Memorial Park and Playground 22.44.060
Eugene "Tink" Bradley Park 22.44.260
Fanetti Plaza 22.44.230
Father Edward S. Filipiak Park 22.44.250
Father Maurice Nutt Park 22.44.340
Greg Freeman Park at Four Corners 22.44.380
Gregory J. Carter Park 22.44.110
Ivory Perry Memorial Park 22.44.310
J. Milton Turner Playground 22.44.070
Janet B. Wood Park 22.44.375
John H. Poelker Park 22.44.280
Jordan W. Chambers Park 22.44.210
Kiener Plaza Park—Morton D. May Memorial Amphitheater 22.44.300
Leon Strauss Park 22.44.350
Lindenwood Park 22.44.150
Loretta Lee Hall Park 22.44.377
Louis G.(Midge) Berra Park 22.44.190
Marie Fowler Park 22.44.330
Mount Pleasant Park 22.44.080
Norman R. Seay Expansion Park 22.44.370
Phillip J. Lucier Park 22.44.270
Ray Leisure Park and Playground 22.44.240

PARKS, RECREATION AND FORESTRY (Cont'd.)
Designation of parks and other recreational facilities (Cont'd.)
Richard H. Amberg Park 22.44.200
Robert Terry Park 22.44.130
Senator J.B. "Jet" Banks Park 22.44.097
The McDonnell Planetarium 22.44.170
W.C. Handy Park 22.44.140
William L. Clay, Sr. Sculpture Park 22.44.376
Director of Parks, Recreation and Forestry 22.04.010 et seq.
See: DIRECTOR OF PARKS, RECREATION AND FORESTRY
Division of Forestry 22.48.010 et seq.
See: DIVISION OF FORESTRY
Division of Parks 22.08.010 et seq.
See: DIVISION OF PARKS
Division of Recreation 22.12.010 et seq.
See: DIVISION OF RECREATION
Dwight F. Davis Tennis Tournament Center 22.36.010 et seq.
See: DWIGHT F. DAVIS TENNIS TOURNAMENT CENTER
Firearms
Persons carrying
Exclude from permitted area by permit 22.16.190
Operation Brightside Agency 22.05.010 et seq.
See: OPERATION BRIGHTSIDE AGENCY
Park, square or plaza land use
Alteration or construction—Permit required 22.42.060
Copy of report to Board members 22.42.100
Definitions 22.42.010
Exceptions—Lease required 22.42.040
Lease requirements 22.42.050
Permit
Application
Granting 22.42.070
Modification 22.42.140
Report to Clerk 22.42.090
Review 22.42.080
Issuance procedure 22.42.110
Resolution to grant or deny application
Hearing 22.42.120
Second reading 22.42.130
Required, lease 22.42.030
Use authorization 22.42.020
Public places, beverage cans or bottles in
Definitions 22.22.010
Exceptions 22.22.030
Offenses 22.22.020
Penalty 22.22.040

PARKS, RECREATION AND FORESTRY (Cont'd.)
Regulations, park. See also herein specific subjects
Animals at large 22.16.050
Disorderly conduct 22.16.090
Hitching animals 22.16.040
Leash required 22.16.060
Molesting nests 22.16.020
Mutilation or destruction of park property 22.16.010
Posters 22.16.030
Speeches 22.16.070
Speed limit 22.16.120
Vehicles 22.16.130
Walking on grass 22.16.080
Rental and leasing, park
Cancellation of agreements 22.32.020
Exclusive use prohibited 22.32.010
Temporary permits 22.32.030
St. Louis Art Museum 22.16.150 et seq.
See: ST. LOUIS ART MUSEUM
Surface parking lots 8.70.035
Use of facilities by organized groups
Admission prices 22.24.010
Appeals 22.24.110
Charges for additional expenses to City 22.24.090
City facilities 22.24.050
Conflict of dates 22.24.070
Insurance policy 22.24.080
Rules and regulations 22.24.100
Stands
In addition to City stands 22.24.030
Location 22.24.040
Term of permit 22.24.060
Time and location 22.24.020
Zoological Park 22.28.010 et seq.
See: ZOOLOGICAL PARK

PAROLE COMMITTEE
Chief Parole and Probation Officer 16.04.040
City Workhouse inspection 16.04.070
Meetings—Quorum 16.04.050
Membership 16.04.010
Organization—Rules 16.04.030
Parole and probation officers
Bonds 16.04.090
Duties 16.04.100
Recommendations for parole 16.04.060
Reports—Rights of access 16.04.080
Terms 16.04.020

PAWNBROKERS
Agents 8.72.130
Bond 8.72.070
Dealing with minors 8.72.100
Defined 8.72.010

PAWNBROKERS (Cont'd.)
Hours 8.72.110
License
Application 8.72.030
Required—Affidavit 8.72.020
Revocation 8.72.060
Separate for each place of business 8.72.050
Limits on number of licenses issued 8.72.160
Loans on parts of article 8.72.120
Photographs of customers 8.72.140
Register
Inspection 8.72.090
Required 8.72.080
Serial or identifying numbers 8.72.150

PAY PERIOD RESERVE FUND
Appropriation 5.44.030
Deposits—Expenditures 5.44.020
Established 5.44.010

PAYROLL EXPENSE TAX
Applicability of tax 5.23.040
Attempt to defeat or evade tax—Penalty for violation—Failure to pay 5.23.120
Definitions 5.23.010
Determination of tax attributable to City 5.23.030
Duties of Collector—Recordkeeping—Enforcement and administration 5.23.080
Exemptions 5.23.050
Failure, refusal or neglect to make return—Penalty for violation 5.23.110
Imposed, tax 5.23.020
Payment of tax not required of certain entities 5.23.140
Recoverability of tax 5.23.100
Request for financial information 5.23.070
Tax payment protest—Impoundment of tax portions protected—Investment of impounded taxes 5.23.130
Unpaid tax—Liability—Penalty 5.23.090
When due and payable—Filing of return 5.23.060

PEDESTRIANS' RIGHTS AND DUTIES
Blind pedestrian right-of-way 17.20.110
Crossing at other than crosswalks 17.20.030
Drivers to exercise due care 17.20.050
Obedience to traffic-control devices and traffic laws 17.20.010
Penalty clause 17.20.140
Restricted, roller skates, coaster and similar devices 17.20.120
Right-of-way in crosswalks 17.20.020
Roller skates, in-line skates and skateboards prohibited in certain area 17.20.125
Sidewalks, right-of-way on 17.20.090
Soliciting rides or business 17.20.080

PEDESTRIANS' RIGHTS AND DUTIES (Cont'd.)
Streets, pedestrians on 17.20.070
To use right half of crosswalks, pedestrians 17.20.060
Under influence of alcohol or drugs 17.20.130
When—Crossing prohibited 17.20.040
Yield to authorized emergency vehicles, pedestrians 17.20.100

PERSON
Definitions and rules of construction 1.08.160

PERSONAL PROPERTY
Definitions and rules of construction 1.08.250

PERSONNEL
Appointment and removal 4.06.010 et seq.
See: APPOINTMENT AND REMOVAL
Board of Aldermen employees
Salaries 4.22.010
Board of Election Commissioners employees
Changes to the classification plan 4.68.040
Holidays 4.68.060
List of classes 4.68.010
Official pay schedule for classification grades 4.68.020
Overtime 4.68.050
Salary adjustment 4.68.030
Cashing of personal checks
By City employees or officials 4.60.010
Penalty for violation 4.60.020
Circuit Attorney Office employees
Annual rate of employee compensation 4.48.050
Appointment procedure 4.48.030
Bi-weekly salary payment 4.48.040
List of classes 4.48.010
Official pay schedule for classification grades 4.48.020
Overtime wages 4.48.060
City Employees Retirement System 4.16.010 et seq.
See: CITY EMPLOYEES RETIREMENT SYSTEM
Classified service plan 4.10.010 et seq.
See: CLASSIFIED SERVICE PLAN
Collection Division employees
Funding for salaries 4.44.030
General pay schedule 4.44.020
Grades 4.44.010
Holidays 4.44.070
Increases 4.44.040
New classifications 4.44.060
Salary adjustments 4.44.050
Commissions of office
Contents of form 4.09.010
To whom commissions shall be issued 4.09.020

PERSONNEL (Cont'd.)
Conflict of interest 4.07.010 et seq.
See: CONFLICT OF INTEREST
County officer salaries
Circuit Clerk—Compensation for additional duties 4.52.010
License Collector—Compensation for additional duties 4.52.020
Payment 4.52.060
Recorder of Deeds—Compensation for additional duties 4.52.030
Sheriff—Compensation for additional duties 4.52.040
Treasurer—Compensation for additional duties 4.52.050
Disclosure of gifts
Chapter 4.02, Violation of 4.03.040
Definitions 4.03.010
Gift Value for Reporting 4.03.020
Reporting of gifts—When 4.03.030
Violation—Penalties 4.03.050
Duties in general
Penalty for violation 4.02.020
Private gain and gifts 4.02.010
Fidelity bonds
Approval of bonds—Surety 4.14.020
Blanket bonding 4.14.040
Bond required 4.14.010
Effect of new bond 4.14.120
New bond 4.14.060
Order to renew—Failure 4.14.050
Petition for discharge
Allowed 4.14.070
Contents—To whom addressed 4.14.080
Examination—New bond 4.14.110
Notification of principal 4.14.090
Publication of notice 4.14.100
Quarterly examination—Report 4.14.130
Renewals 4.14.030
Financial contributions from gaming interests
Definitions 4.08.020
Exemption 4.08.030
Penalty for Violation 4.08.040
Prohibited 4.08.010
Firefighters' Retirement Plan 4.19.010 et seq.
See: FIREFIGHTERS' RETIREMENT PLAN
Firemen's Retirement System 4.18.010 et seq.
See: FIREMEN'S RETIREMENT SYSTEM
House of Detention employees
Director and Assistant Director 4.40.010
Doctor and nurse 4.40.020
Other employees
Appointment 4.40.040

PERSONNEL (Cont'd.)
House of Detention employees (Cont'd.)
Other employees (Cont'd.)
Number 4.40.050
Salaries 4.40.060
Salaries for directors, doctor and nurse 4.40.030
Vacations 4.40.070
License Collector employees
Alphabetical list of classes 4.28.010
Appointments 4.28.030
Classification 4.28.120
Conversion 4.28.080
General pay schedule 4.28.020
Holidays 4.28.090
Income sources 4.28.070
Medical leave 4.28.110
Promotion, demotion, reallocation and transfer 4.28.050
Salary adjustment 4.28.060
Starting salary 4.28.040
Vacation 4.28.100
Licensing and use of City automobiles
Adoption of a City Motor Vehicle Policy Manual Consistent with Chapter 4.13 4.13.080
Identification of City automobiles
Exemptions 4.13.040
Required 4.13.030
Motor vehicle records 4.13.060
Personal licensing or use
Exemptions 4.13.020
Prohibited 4.13.010
Reimbursement of personal motor vehicle usage for official City business 4.13.070
Use of City motor vehicles 4.13.050
Medical Examiner's Office employees
Adjustment, salary 4.54.070
Alphabetical list of classes 4.54.010
Certification of payroll 4.54.130
Changes to classification plan 4.54.110
Conversion 4.54.090
Death benefit 4.54.240
Deferred compensation 4.54.270
Education reimbursement 4.54.210
Holidays 4.54.160
Income sources 4.54.080
Insurance benefits 4.54.230
Jury and witness leave 4.54.260
Leaves of absence and family and medical leave 4.54.220
Medical leave 4.54.190
Military leave 4.54.200
Minimum work hours 4.54.140

PERSONNEL (Cont'd.)
Medical Examiner's Office employees (Cont'd.)
Official pay schedule for medical examiner grades 4.54.020
Overtime 4.54.150
Payment of salaries 4.54.100
Payroll forms 4.54.120
Promotion, demotion, reallocation, transfer and temporary promotion 4.54.060
Retirement 4.54.280
Salary range limitations 4.54.040
Sick leave 4.54.180
Starting salary 4.54.050
Subsistence and maintenance charges 4.54.030
Vacation 4.54.170
Workers' compensation and disability leave 4.54.250
Mobile electronic devices
Definitions 4.63.010
Implementation of policy 4.63.030
Issuance of 4.63.020
Motor vehicle responsibility
City Counselor to investigate accidents 4.12.020
Comptroller to furnish proof 4.12.010
Self-insurance plan
Adopted 4.12.030
Limit on settlements 4.12.040
Municipal Tax Section employees
Appointments 4.46.060
Conversion 4.46.110
Grades 4.46.010
Income sources 4.46.100
Management pay schedule
Beginning December 17, 1990 4.46.050
Beginning June 17, 1990 4.46.040
Pay scale
Beginning December 17, 1990 4.46.030
Beginning June 17, 1990 4.46.020
Promotion, demotion, reallocation and transfer 4.46.080
Salary adjustment 4.46.090
Starting salary 4.46.070
Oath of office
Annual salaried employees 4.04.010
Other employees 4.04.020
Prerequisite for compensation 4.04.030
Parking Meter Division employees
Addition or reallocation of grades 4.30.024
Conversion 4.30.023
Income sources 4.30.022
Meter violation tags 4.30.040
Notification of drivers—Violation—Penalty 4.30.050
Pay schedule 4.30.012
Position classes 4.30.010
PERSONNEL (Cont'd.)
Parking Meter Division employees (Cont'd.)
Promotion, demotion, transfer, reallocation 4.30.020
Salary adjustment 4.30.021
Starting salary 4.30.015
Personal service contracts with former employees
Null and void contracts 4.62.020
Prohibited as result of violation of Charter 4.62.010
Personnel records
Individually identifiable records closed to public 4.15.010
Penalty for violation 4.15.030
Public official access—Employee's access to own records 4.15.020
Recorder of Deeds employees
Alphabetical list of classes 4.34.010
General pay schedule 4.34.020
Holidays 4.34.060
Increases 4.34.030
New classifications 4.34.050
Salary adjustments 4.34.040
Retention of employees performing janitorial and security services
Definitions 4.70.010
Exemptions 4.70.030
Outsourcing of services by the City, and/or City agency 4.70.050
Protection for employees 4.70.020
Retention by the City and/or City agency 4.70.060
Violations 4.70.040
Salary history of applicants for employment
Definitions 4.65.010
Prohibitions 4.65.020
Sheriff's Office employees
Adjustments 4.36.015
Changes to pay plan 4.36.090
Compensation for Sheriff's Attorney 4.36.140
Conversion 4.36.080
Grades 4.36.010
Holidays 4.36.120
Income sources 4.36.070
Jury and witness leave 4.36.130
Leave of absence and family/medical leave 4.36.110
Military leave 4.36.100
Official pay schedule of grades 4.36.020
Promotion, demotion, transfer, reallocation 4.36.050
Salary adjustment 4.36.060
Shift differential compensation—Maximum salary—Increases 4.36.030
Starting salary 4.36.040
Social Security 4.20.010 et seq.
See: SOCIAL SECURITY

PERSONNEL (Cont'd.)
Travel reports for elected officials
Compliance 4.05.030
Penalty 4.05.040
Reporting, Travel Expenses for 4.05.010
Requirements 4.05.020
Treasury Division employees
Bi-weekly pay schedule 4.26.030
Changes to pay plan 4.26.060
Conversion 4.26.050
Income sources 4.26.040
Pay schedule 4.26.020
Position classes 4.26.015
Promotion, demotion, transfer, reallocation 4.26.022
Salary adjustment 4.26.023
Starting salary 4.26.021
Treasurer salary 4.26.010

PET SPAY, NEUTER AND MICROCHIP ASSISTANCE FUND
Deposit 5.95.030
Established 5.95.010
Excess payment disposition 5.95.020
Use of funds 5.95.040

PETITIONS
Recall of elective officers Charter Art. III-1 et seq.
See: RECALL OF ELECTIVE OFFICERS

PHOTOGRAPHERS
Certificates—Register 8.74.060
Classification—Definitions 8.74.010
Studio photographer license—Required 8.74.020
Transient photographer license—Required 8.74.040

PLANETARIUM COMMISSION
Duties 3.74.020
Established—Members—Removal 3.74.010

PLANNED INDUSTRIAL EXPANSION AUTHORITY
Approval 3.84.010
Commissioners—Qualifications 3.84.030
Notification of adoption—Commissioners—Appointment 3.84.020

PLANNING AND URBAN DESIGN AGENCY
Adoption by Commission—Comprehensive Plans 3.48.100
Agency established 3.48.020
Building permits—Without access to streets 3.48.170
Commission—Neighborhood Plans, Tropical Plans and other plans 3.48.110
Comprehensive Plan
Contents 3.48.080
Preparation 3.48.090
Construction in area with Comprehensive Plan 3.48.120

PLANNING AND URBAN DESIGN AGENCY (Cont'd.)
Cultural Resources Director 3.48.040
Definitions 3.48.010
Director of Planning and Urban Design Agency 3.48.030
Duties of Cultural Resources Office 3.48.180
Effective date—Functions and duties 3.48.190
Industrial Expansion, Inc, plan for 3.48.220
Mapped areas, building in 3.48.160
Official map
Changes 3.48.150
Provisions re 3.48.140
Planning Commission 3.48.060
Plans—Duties of Planning Office 3.48.050
Platting street lines 3.48.130
Powers and duties, Planning Commission 3.48.070

PLUMBERS
Advertising regulation 8.75.010
False representation 8.75.020

PLUMBING CODE
Adoption 25.04.010
Amendments 25.04.020
Penalty clause 25.04.030

POET LAUREATE AND POET LAUREATE TASK FORCE
Effective date 3.135.040
Membership and duties—Poet Laureate Task Force 3.135.020
Poet Laureate 3.135.010
Selection—Poet Laureate Task Force 3.135.030

POLES, WIRES AND CONDUITS
Conduits, underground
Board to notify interested persons of proposed conduits 23.48.020
Free use of duct for police and fire communication 23.48.040
Permit—Application 23.48.010
Regulations 23.48.030
Terms defined 23.48.050
Electrical apparatus
Accidental contact between wires to be prevented 23.44.220
Application required 23.44.030
Approved disconnect devices 23.44.110
Changes in pole location or wire height 23.44.090
Conditions for placing wires 23.44.010
Cutouts 23.44.130
Dangerous wires 23.44.140
Dead and uncared for wires 23.44.230

POLES, WIRES AND CONDUITS (Cont'd.)
Electrical apparatus (Cont'd.)
Electrical plants
Operator's duties—Tags 23.44.210
Premises examination 23.44.200
Equipment approval 23.44.120
Excavations 23.44.100
Improperly strung or maintained wires 23.44.190
Interfering with electrical apparatus or workmen 23.44.240
Overhead wires at intersections 23.44.160
Permit 23.44.040
Placing and securing wires 23.44.020
Poles
In alleys—Wire Height 23.44.070
In streets—Wire height 23.44.060
Requirements 23.44.080
Removal of overhead wires 23.44.150
Right of City to string wires 23.44.180
When overhead wires shall not be erected 23.44.170
Wires may be placed on poles of other corporations, when 23.44.050
Fire alarm wires
Authority to maintain 23.50.010
Bond 23.50.020
Poles—Tax 23.50.030
Gas companies
Connections 23.54.010
Repair of street openings 23.54.020
Stopcock box placement 23.54.030
Manholes and service boxes
Cancellation of certificate disqualifies 23.46.050
Certificate of authority—Cancellation 23.46.040
Employees 23.46.030
Guarding open manholes and service boxes 23.46.010
Police Department to enforce chapter 23.46.060
Removal of manhole covers—Certificate of authority required 23.46.020
Reconnection of terminated service
Penalty for violation 23.56.020
Use of services—Reconnected—Prohibited when 23.56.010
Small wireless facilities
Applicability 23.59.010
Construction standards 23.59.050
Definitions 23.59.020
General standards 23.59.030
Indemnity, insurance, performance bond 23.59.060
Miscellaneous provisions 23.59.070
Permitting provisions 23.59.040
Telephone and telegraph companies
Acceptance of use of crossarm 23.52.040
POLES, WIRES AND CONDUITS (Cont'd.)
Telephone and telegraph companies (Cont'd.)
Board of Public Service 23.52.010
Changes 23.52.060
Compensation for use of streets 23.52.140
Deposit for restoration of streets 23.52.110
Enforcement 23.52.190
Illegally used wires
Penalty 23.52.170
Removal 23.52.160
Must be for legal purposes, use of wires 23.52.150
Other modes of conducting wires 23.52.130
Permit required 23.52.050
Poles
In alleys—Wire height 23.52.080
In streets—Wire height 23.52.070
Quality and equipment of poles 23.52.100
Rates and charges 23.52.200
Telephone booths 23.52.090
To be erected in accordance with this chapter, poles and other fixtures 23.52.020
Use of one crossarm by City 23.52.030
When wires may be placed on poles of other corporations 23.52.120
Wires strung without permit 23.52.180
Underground District 23.42.010 et seq.
See: UNDERGROUND DISTRICT

PORT AUTHORITY COMMISSION
Appointment—Terms—Qualifications—Salaries 21.36.010
Budget preparation 21.36.040
Jurisdiction 21.36.050
Port Advisory Committee 21.36.020
Powers and duties of Commission 21.36.030

PORTABLE STORAGE UNITS
Definitions 20.53.010
Duration 20.53.040
Exceptions 20.53.080
Fee, permit 20.53.030
Festival areas 20.53.060
Permit required—Application—Insurance 20.53.020
Placement of units 20.53.050
Rules and regulations 20.53.090
Unlawful placement of portable storage units 20.53.070
Violations and penalties 20.53.100

POWERS, DUTIES AND RESPONSIBILITIES
City officers and employees Charter Art. VIII-1 et seq.
See: CITY OFFICERS AND EMPLOYEES
Eminent domain Charter Art. XXI-1 et seq.
See: EMINENT DOMAIN

POWERS, DUTIES AND RESPONSIBILITIES (Cont'd.)
Incorporation Charter Art. I-1 et seq.
See: INCORPORATION

PRECEDING, FOLLOWING
Definitions and rules of construction 1.08.170

PRESCRIPTION DRUG MONITORING PROGRAM (PDMP)
Definitions 11.59.020
Deposit in Prescription Drug Monitoring Program Fund 11.59.100
Director to notify law enforcement or regulatory agency upon reasonable belief of a law or professional standards violation 11.59.050
Dispensation information to be closed pursuant to law 11.59.040
Establishment of Prescription Drug Monitoring Program Fund 11.59.090
Monitoring program by the Department, establishment of; coordination with St. Louis County Department of Public Health 11.59.030
Penalties 11.59.080
Persons authorized to be provided dispensation information 11.59.060
Pharmacists or prescribers not required to obtain information from the Health Department 11.59.070
Title of act; scope; certain persons exempt 11.59.010

PRESERVATION BOARD
Established—Membership—Continuation of prior commission 24.08.010
Execution of contracts and acceptance of gifts, grants or property 24.08.050
Fees 24.08.040
Organization, compensation and removal of members 24.08.020
Powers and duties 24.08.030

PRESERVATION REVIEW DISTRICTS
Established 24.36.010
Public hearing required—Notice 24.36.020

PRESIDENT OF BOARD OF PUBLIC SERVICE
Associate to President 3.28.030
Board of public service Charter Art. XIII-9
Designation of subordinate to sign name of President 3.28.010
Revocation of designation 3.28.020

PRISONERS AND EX-CONVICTS
Access of correctional and detention facilities by attorneys 16.30.010 et seq.
See: CORRECTIONAL AND DETENTION FACILITIES

PRISONERS AND EX-CONVICTS (Cont'd.)
City Jail 16.12.010 et seq.
See: CITY JAIL
City Workhouse 16.16.010 et seq.
See: CITY WORKHOUSE
Credit toward service of sentence
City court order 16.28.020
Delays in delivery 16.28.010
Female inmates
Copies of regulation 16.20.050
Duties of warden of City Jail 16.20.040
Rescinding regulations 16.20.060
Sentencing implies transfer 16.20.030
Transfers
Not allowed, when 16.20.020
When allowed 16.20.010
Parole Committee 16.04.010 et seq.
See: PAROLE COMMITTEE
Probation 16.08.010 et seq.
See: PROBATION
Serving time intermittently
Good cause 16.24.010
Setting order aside 16.24.020
Written request 16.24.030

PRIVATE SECURITY PERSONNEL
Employer's responsibility 8.75A.020
License required 8.75A.010
Penalty for violation 8.75A.030

PRIVIES
Cleaning 11.16.070
Construction of privy vaults not connected with sewers 11.16.050
Defective water closets 11.16.060
Enforcement 11.16.080
Maintenance of leaking, filthy or defective privies 11.16.020
Required 11.16.010
Sewer connection 11.16.040
Tubs to be emptied daily 11.16.030
Water closet requirements 11.16.090

PROBATION
City court powers 16.08.010
Conditions 16.08.040
Defined—Duties—Probationer 16.08.060
Discharge
Granting 16.08.070
Payment of fines and costs 16.08.080
Pending appeal 16.08.090
Powers of parole and probation officers 16.08.100
Termination 16.08.030
When allowed 16.08.020

PROPERTY
Definitions and rules of construction 1.08.180
Eminent domain Charter Art. XXI-1 et seq.
See: EMINENT DOMAIN

PROPERTY TAX
Deferred maintenance improvements
Applicability 5.26.130
Application for postponement of assessment 5.26.140
Definitions 5.26.110
Postponement of assessment of deferred maintenance improvements 5.26.150
Purpose 5.26.100
Scope 5.26.120
Tax levies
Art museum levy 5.26.040
Bonded indebtedness levy 5.26.020
Exception from levies 5.26.050
Library fund levy 5.26.030
Municipal revenue levy 5.26.010
Zoological park levy 5.26.060

PROSECUTION
General penalty 1.12.080 et seq.
See: GENERAL PENALTY

PROSTITUTION
Definitions 15.34.010
House
Allowing premises to be used for 15.34.100
Duty of police 15.34.120
Frequenting 15.34.090
Male person inhabiting, eating or sleeping in 15.34.110
Prohibited 15.34.080
Loitering, prostitution 15.34.040
Penalty for violation 15.34.030
Public solicitation and patronizing prostitution, prostitution—Sex of parties no defense 15.34.020

PUBLIC ART TRUST FUND
Application of funds 5.90.090
Definitions 5.90.020
Established, fund 5.90.030
Funding 5.90.080
Legislative findings and declarations 5.90.010
Other personnel—Duties 5.90.070
Review procedures 5.90.100
The Regional Arts Commission—Powers and duties 5.90.060
To be administered by the Commission, fund 5.90.040
Use of funds 5.90.050

PUBLIC BUILDINGS AND PROPERTY
City Hall and Municipal Courts
Established, City hall 3.56.010
Located in City Hall, offices 3.56.030
Mayor to assign offices 3.56.040
Municipal office and court building established 3.56.020
Offices
Divisions of Traffic, Parks, Recreation and Forestry 3.56.050
Other departments 3.56.060
Procedure—Removal 3.56.090
Purpose 3.56.070
Removal—When not allowed 3.56.080
Discrimination in public places
Prohibited, discrimination 3.56.510
General provisions
Time
Clocks in public buildings 1.24.040
Henry W. Kiel Auditorium 3.56.140 et seq.
See: HENRY W.KIEL AUDITORIUM
Refreshment stands in public buildings
Cancellation of lease 3.56.430
Forfeiture of lease 3.56.440
Missouri Commission for the Blind to be lessee 3.56.400
Purpose of Part IV 3.56.420
Removal of fixtures 3.56.450
Rent 3.56.410
Stands prohibited in rotunda 3.56.460
Soldiers' Memorial Building 3.56.290 et seq.
See: SOLDIERS' MEMORIAL BUILDING
U.S. Flag in public places
Display 3.56.560

PUBLIC DRINKING FOUNTAINS
Acceptance to be filed 11.10.080
Application 11.10.020
Charges 11.10.070
Compliance 11.10.010
Conditions for discontinuance 11.10.090
Construction 11.10.040
Drainage 11.10.060
Exceptions 11.10.100
Humane society may establish fountains 11.10.110
Location 11.10.030
Open air assembly unit 11.10.120
Supplementary fountain 11.10.050

PUBLIC GARAGES
Defined 8.76.010
Exemptions 8.76.080
Gross receipts report
Delinquent 8.76.070

PUBLIC GARAGES (Cont'd.)
Gross receipts report (Cont'd.)
Required 8.76.060
License
Application 8.76.030
Required 8.76.020
Tax 8.76.040, 8.76.050
Penalty for violation 8.76.090

PUBLIC LIGHTING
Additional lighting
Acceptance of chapter 23.60.060
Payment 23.60.040
Repairs 23.60.050
Communications transmission systems
Agency powers and duties 23.64.110
Application for license 23.64.050
Bonds 23.64.120
Charge, license 23.64.090
Citation 23.64.010
Conditions, license 23.64.080
Definitions 23.64.020
Indemnity—Insurance 23.64.130
License fees—Payment—Audit 23.64.100
Minimum technical specifications 23.64.140
No liability or warranty 23.64.070
Police power 23.64.160
Purpose 23.64.030
Requirement, license 23.64.040
Retroactivity of provisions 23.64.180
Service of notice 23.64.060
Streets and pole attachment use 23.64.150
Transfers, assignments and subleases 23.64.170
Department of Public Utilities to maintain municipal plants 23.60.070
Director of Public Utilities 23.60.010 et seq.
See: DIRECTOR OF PUBLIC UTILITIES

PUBLIC PEACE, MORALS AND WELFARE
Beekeeping
Limited 15.140.010
Penalty for violation 15.140.020
Building service employees
Definitions 15.160.010
Penalty 15.160.030
Protection for building service employees 15.160.020
Commercial use of drones
Definitions 15.190.020
Exemption 15.190.050
Penalty for violation 15.190.060
Prohibited operations for drones used for commerce or business 15.190.030
Purpose and intent 15.190.010

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Commercial use of drones (Cont'd.)
Reasonable time, place, and manner of drone operations 15.190.040
Conduct at strike
Definitions 15.158.020
Penalty for violation 15.158.040
Policy declaration 15.158.010
Unlawful conduct 15.158.030
Consumer protection 15.84.010 et seq.
See: CONSUMER PROTECTION
Cyber harassment
Definitions 15.165.010
Penalty for violation 15.165.030
The offense of cyber harassment 15.165.020
Deeds Law
Legislative findings and purposes 15.152.020
Penalty for violation 15.152.050
Recorder of Deeds 15.152.040
Requirements for deeds 15.152.030
Title 15.152.010
Discrimination 15.18.155 et seq.
See: DISCRIMINATION
Electric storage batteries
Applicability of provisions to cases which are reused 15.150.105
Bond 15.150.070
Definitions 15.150.010
Failure to comply with regulations 15.150.090
Hearing
When Board of Public Service denies permit 15.150.060
When Health Commissioner denies permit 15.150.050
Inspection of premises 15.150.040
Penalty for violation of Sections 15.150.010—15.150.090 15.150.100
Permit
Application 15.150.030
Required 15.150.020
Regulations 15.150.080
Rented storage batteries
Not to be received for recharging 15.150.130
Removal or destroying words, marks or characters 15.150.110
Retention after ten days without written consent 15.150.140
Sale or unauthorized disposal 15.150.120
Fireworks 15.82.010 et seq.
See: FIREWORKS
Graffiti 15.77.010 et seq.
See: GRAFFITI

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Identification requirements of police officers
Definitions 15.186.010
Duty to identify and inform 15.186.020
Exceptions 15.186.030
Policy and procedures for consent searches 15.186.040
Minimum wage
Collective bargaining 15.170.060
Definitions 15.170.010
Enforcement 15.170.050
Notice and posting 15.170.040
Other prohibited conduct 15.170.030
Wage requirements 15.170.020
Minors, offenses by or against
Abandoned ice boxes
Penalty for violation 15.106.020
Prohibited 15.106.010
Contributing to the delinquency of a child
Evidence of reputation 15.108.030
Penalty for violation 15.108.020
Responsibility of parents 15.108.010
Curfew
Definitions 15.110.010
Enforcement procedure 15.110.050
Exemptions to curfew restrictions 15.110.030
Juveniles, curfew for 15.110.020
Parents required to pick up juvenile 15.110.080
Penalty for violation 15.110.070
Responsibility, parental 15.110.040
Sale of consumer products to juveniles 15.110.090
Violation by parent 15.110.060
Disruption of school or travel
Detaining minor 15.112.010
Encouraging absenteeism 15.112.030
Penalty for violation 15.112.040
Schools, disrupting 15.112.020
Entertainment area curfew
Defined—Entertainment area 15.111.010
Penalty for violation 15.111.030
Prohibition on people under 21 years 15.111.020
Fake identification
Prohibited actions 15.117.010
Violation—Penalty 15.117.020
Graffiti tools
Definitions 15.128.020
Display requirements 15.128.050
Enforcement 15.128.060
Findings 15.128.010
Penalty for violation 15.128.070
Prohibited, graffiti 15.128.030
Sale of graffiti tools regulated 15.128.040

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Minors, offenses by or against (Cont'd.)
Harboring minors
Minors under supervision of juvenile court—Notification 15.121.020
More than forty-eight hours, harboring minor 15.121.040
Runaways—Notification 15.121.010
Violation—Penalty 15.121.050
Who has violated the law, harboring minor 15.121.030
Liberties with minors
Prohibited 15.114.010
Liquor and beer offenses involving minors
Delivering intoxicating liquor or nonintoxicating beer to minor 15.116.015
Minors in entertainment 15.116.070
Misrepresentation of age 15.116.050
Possession of false evidence of age 15.116.060
Posted premises 15.116.040
Providing liquor or beer to minors 15.116.010
Purchase or possession by minors 15.116.030
Selling 15.116.020
Parental duty
Failure to report—Parental control 15.120.010
Penalty for violation 15.120.020
School attendance by child 15.120.030
Section 15.120.030—Penalty for violation 15.120.040
Pinball machines, minors operating
Definitions 15.118.010
Sign 15.118.030
Written consent 15.118.020
Publications
Employing minor to distribute 15.126.030
Exhibiting 15.126.020
Possession is evidence 15.126.040
Selling or giving away 15.126.010
Renting rooms to minors
Applicability 15.122.020
Penalty for violation 15.122.030
Written consent 15.122.010
Tattooing, branding or body piercing minors
Definitions 15.124.010
Health Commissioner to promulgate rules and regulations 15.124.050
Intoxicating liquors or controlled substances 15.124.030
License required 15.124.040
Owner liability 15.124.060
Parental consent 15.124.020
Penalty for violation 15.124.070

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Minors, offenses by or against (Cont'd.)
Unattended children in motor vehicles
Child, unattended 15.129.020
Definitions 15.129.010
Penalty for violation 15.129.030
Miscellaneous offenses and regulations. See also herein specific subjects
Assembly room records
Manager to keep—Inspection 15.148.010
Discrimination based on health decisions or pregnancy
Complaints, proceedings and enforcement 15.175.030
Definition of terms 15.175.010
Prohibited discriminatory practices 15.175.020
Rights or remedies for sex discrimination 15.175.040
Kites
Attachment to electrical current prohibited 15.155.010
Seats for female employees
Mercantile establishments 15.146.010
Noise 15.50.010 et seq.
See: NOISE
Offenses against public officers and government. See also herein specific subjects
Automatic dialer alarm system
Definitions 15.07.010
Limitations on automatic dialer alarm systems 15.07.020
Violation—Penalty 15.07.030
Bribery
Penalty for violation 15.02.010
Reward
Conviction of briber 15.02.030
Employee or officer, conviction of 15.02.020
Failure to obey subpoena
Misdemeanor declared 15.04.010
False alarms and reports
Violations of laws 15.06.010
Impersonation of officers
Badges
Sale 15.08.020
Wearing—Display 15.08.010
Provisions re 15.08.030
Neighborhood protection order
Definition 15.13.020
Penalty for violation 15.13.030
Violation 15.13.010
Police animals
Exceptions 15.12.020
PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Offenses against public officers and government. See also herein specific subjects (Cont'd.)
Police animals (Cont'd.)
Injuring or interfering with animal prohibited 15.12.010
Penalty for violations 15.12.030
Resisting arrest
Impersonating or interfering with officer—Misdemeanor declared 15.10.010
Property, offenses against. See also herein specific subjects
Burglar tools
Prohibited 15.64.010
Dealing in stolen property
Buying or receiving 15.66.010
Penalty for violation 15.66.030
Proof of reasonable belief property not stolen 15.66.020
Dumping waste materials
Penalty for violation 15.80.020
Use of collected fines 15.80.030
Without written permission, dumping 15.80.010
Injury to plants and flowers
Prohibited—Penalty 15.68.010
Intentional defacement of buildings
Definitions 15.79.020
Parental responsibility 15.79.030
Penalty for violation 15.79.050
Prohibited 15.79.010
Written warning sent to parent 15.79.040
Petty larceny
Articles of value—Penalty for injury or stealing 15.62.010
Protection of library property
Failure to return books 15.72.030
Fines 15.72.040
Mutilating and marking books 15.72.020
Taking books 15.72.010
Removal of grocery carts
Marking carts 15.70.020
Prohibited 15.70.010
Stealing
Penalty for violation 15.60.030
Prohibited 15.60.010
State law provisions 15.60.020
The motor vehicles of others, offenses against
Jurisdiction 15.83.040
Notice to victim 15.83.030
Penalty for violation 15.83.050
Removal of items from vehicle 15.83.020
Tampering 15.83.060

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Property, offenses against. See also herein specific subjects (Cont'd.)
The motor vehicles of others, offenses against (Cont'd.)
Vandalizing or forcing entry into vehicle 15.83.010
Unlawful removal of tires and tubes
Owner consent 15.76.010
Possessing tires or tubes 15.76.020
Prostitution 15.34.010 et seq.
See: PROSTITUTION
Public decency, offenses against
Human endurance contests
Defined 15.28.010
Prohibited 15.28.020
Indecent and lewd conduct and books
Definitions 15.30.020
Penalty for violation 15.30.030
Prohibition 15.30.010
Obscenity
Applicability to cable television franchises 15.32.100
Definitions 15.32.050
Display of pornographic material 15.32.090
Evidence of intent 15.32.080
Furnishing pornographic materials to minors 15.32.070
Penalty for violation 15.32.110
Promotion, possession or presentation of pornographic material 15.32.060
Public urination and defecation
Penalty for violation 15.39.020
Provisions re 15.39.010
Public peace, offenses against
Aggressive begging
Definitions 15.44.010
Exceptions 15.44.040
Penalty for violation 15.44.030
Prohibitions 15.44.020
Conduct at athletic events, unlawful
Disturbing the peace of others 15.54.020
Penalty for second violation—Stay of sentence 15.54.060
Reading chapter to spectators 15.54.040
Spectator going onto field 15.54.030
Throwing articles 15.54.010
Violation, penalty for 15.54.050
Crossing barricade or police line
Prohibited 15.55.010
Violation—Penalty 15.55.020
PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Public peace, offenses against (Cont'd.)
Curfew for Prather, Devonshire and Nottingham Avenues
Loitering prohibited 15.49.010
Penalty for violation 15.49.020
Disturbances
Lawful assembly 15.46.010
Peace, disturbing the 15.46.030
Prisoners, disturbing 15.46.040
Religious worship, disturbing 15.46.020
Industrial noise
Applicability of standards established by A.N.S.I 15.51.020
Board of Noise Control Appeals and Variance Review 15.51.070
Definitions 15.51.010
Exceptions 15.51.040
Non-abatement of violations 15.51.060
Notice of violation 15.51.050
Penalty clause 15.51.090
Permissible noise levels—Standards 15.51.030
Variances 15.51.080
Involving labor disputes, unlawful conduct
Employing strikebreakers 15.56.010
Penalty for violation 15.56.020
Merchandise from motor vehicles
Penalty for violation 15.59.020
Unlawful to sell or purchase 15.59.010
Public nuisances
Administrative hearings 15.42.050
Condemnation, revocation of permits, licenses, and nullification of exemptions 15.42.090
Definitions 15.42.010
Failure to provide Department of Public Safety with list of occupants, summons for 15.42.070
Notice 15.42.030
Occupancy list requirement 15.42.060
Provisions re 15.42.020
Summons 15.42.040
Violation of nuisance abatement order, summons for 15.42.080
Unlawful assemblies
Defined 15.52.010
Railroads
Applicability 15.144.010
Bell to be sounded when moving 15.144.020
Brakemen 15.144.040
Climbing on cars while in motion 15.144.060
Man to be stationed on top of car when backing 15.144.030
Steam or other whistles of danger 15.144.050

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Residential real estate open house signs
Definitions 15.157.010
Identification required 15.157.040
Public streets, residential real estate "open house" signs on 15.157.020
Violation of chapter 15.157.050
When displayed 15.157.030
Scrap metal
Copper property peddler's license 15.159.050
Definitions 15.159.010
Electronic recordkeeping requirements 15.159.030
Hold notice 15.159.070
Hours of operation 15.159.020
Penalty for knowing and willful violation by scrap metal dealer 15.159.080
Purchases of certain scrap metal—Requirements 15.159.060
Restricted purchases and exceptions 15.159.040
Seller of stolen metals, penalty for 15.159.090
Use of scrap theft alert system 15.159.100
Spitting 15.38.010 et seq.
See: SPITTING
Straw party registration and control law
Additional requirements for all conveyances and deeds of trust 15.154.060
Amended registration statements 15.154.070
Definitions 15.154.030
Effect on titles and instruments 15.154.130
Former conveyances and deeds of trust 15.154.050
Future conveyances and deeds of trust 15.154.040
Immunity from prosecution 15.154.090
Legislative findings and purpose 15.154.020
Liability of beneficial owners 15.154.120
Penalty for violation 15.154.080
Registration statement
Contents 15.154.100
Indexing and confidentiality 15.154.110
Title 15.154.010
Surveillance technology usage
Annual surveillance reports 15.192.070
Board of Aldermen approval mandatory 15.192.020
Definitions 15.192.010
Lead entity identification 15.192.050
Remedies; discipline; whistleblower protections; exclusionary rule; deletion/destruction requirement 15.192.080
Review of preexisting uses mandatory 15.192.040
Standard for approval 15.192.060
Surveillance use plan ("SUP") and timing of review, hearings, and votes 15.192.030
Use of unapproved surveillance technology in exigent circumstances 15.192.090

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Tampering with a witness or victim
Definitions 15.180.010
Provisions re 15.180.020
Summons and penalty 15.180.030
Trespassing 15.74.010 et seq.
See: TRESPASSING
Vandalism 15.78 et seq.
See: VANDALISM
Weapons 15.130.010 et seq.
See: WEAPONS
Whistleblower Law 15.14.010 et seq.
See: WHISTLEBLOWER LAW
Yard sales
Penalty for violation 15.156.030
Prohibited
Display—Festival permit for sidewalk use 15.156.020
Front yard defined 15.156.010

PUBLIC PHOTOGRAPHIC STUDIOS
Advertising 8.78.320
Booths and cubicles 8.78.270
Corporate licensee
Exemptions 8.78.100
Register—Reporting changes 8.78.090
Counseling or assisting in violations 8.78.330
Definitions 8.78.010
Employee license
Application
Contents 8.78.120
Fee 8.78.130
Issuance 8.78.140
Required 8.78.110
Entertainers 8.78.280
Exemptions
Public agencies defined in Section 8.78.010.A 8.78.340
Schools and theaters 8.78.350
Inspection 8.78.220
License
Application
Contents 8.78.030
Fee 8.78.040
Hearing 8.78.160
Referral to other departments 8.78.050
Verification 8.78.150
Change of name or location 8.78.180
Denial—Issuance 8.78.170
Display 8.78.190
Effect of sale or transfer of studio 8.78.070
Fees 8.78.060
Issuance 8.78.080

PUBLIC PHOTOGRAPHIC STUDIOS (Cont'd.)
License (Cont'd.)
Required 8.78.020
Revocation or suspension 8.78.200
Transfer 8.78.210
Lighting 8.78.260
Minors, employment of 8.78.230
Penalty for violation 8.78.370
Prohibited acts 8.78.240
Signs
Contents
Pictures 8.78.300
Words 8.78.290
Solicitation of trade 8.78.250
Visibility of entertainment 8.78.310

PUBLIC TRANSIT SALES TAX
Accounts 5.25.020
Effective date 5.25.030
Imposed 5.25.010

PUBLIC UTILITIES
Board of public service Charter Art. XIIII-10
Poles, wires and conduits 23.42.010 et seq.
See: POLES, WIRES AND CONDUITS
Public lighting 23.60.010 et seq.
See: PUBLIC LIGHTING
Taxation 23.29.010 et seq.
See: TAXATION
Water 23.02.010 et seq.
See: WATER

PUBLIC WAY
Definitions and rules of construction 1.08.190

PUBLIC WORKS AND IMPROVEMENTS
Acquisition of private sewers by city Charter Art. XXII-17
Alleys Charter Art. XXII-11
City to pay assessments where property exempt Charter Art. XXII-9
Classification of sewers Charter Art. XXII-14
Complaints as to execution of contract Charter Art. XXII-7
Construction, repair and maintenance of private sewers Charter Art. XXII-20
Contracts for sewers to contain provisions for connections Charter Art. XXII-6
Establishment of benefit, taxing and sewer districts, etc. Charter Art. XXII-3
Form of contracts Charter Art. XXII-5
How cost of work or improvement levied and assessed—In general Charter Art. XXII-10

PUBLIC WORKS AND IMPROVEMENTS (Cont'd.)
Improvement bonds and funds Charter Art. XXIV-1 et seq.
See: IMPROVEMENT BONDS AND FUNDS
Insufficient and excessive assessments Charter Art. XXII-23
Levy and assessment of special tax for sewers Charter Art. XXII-16
Location and connection of sewers Charter Art. XXII-15
Ordinance—Contents; authorization for subsequent appropriations Charter Art. XXII-2
Public improvements by individuals—Permit required Charter Art. XXII-21
Recommendations required—Ordinance initiating public works Charter Art. XXII-1
Reconstruction or alteration of district and joint-district sewers Charter Art. XXII-19
Separate contracts for grading and improvement Charter Art. XXII-8
Sidewalks Charter Art. XXII-12
Special tax bills to be issued on completion of work Charter Art. XXII-18
To be let, how contracts Charter Art. XXII-4
Utilization by city of material put into improvement Charter Art. XXII-22
When reconstruction costs to be borne by city Charter Art. XXII-13

PUBLICATIONS
General provisions
Distribution of code
Ordinances—Printing, binding, distribution and sale 1.04.040

— Q —

QUARANTINE
Definitions 11.56.780
Enforcement 11.56.830
Establishment of quarantine or isolation 11.56.790
Isolation and quarantine premises 11.56.810
Orders, quarantine and isolation 11.56.800
Penalty for violation 11.56.840
Relief from isolation and quarantine 11.56.820

— R —

REAL ESTATE AGENTS AND BROKERS
Defined 8.80.010
License—Required 8.80.020

REAL PROPERTY, REAL ESTATE
Definitions and rules of construction 1.08.200

RECALL OF ELECTIVE OFFICERS
By whom exercised Charter Art. III-1
Form of ballot Charter Art. III-7
Limitations on use Charter Art. III-9
Notification to officer Charter Art. III-6
Petition
Contents Charter Art. III-4
Filing and certification Charter Art. III-5
How signatures affixed Charter Art. III-3
Percentage of voters required Charter Art. III-2
Propositions to be separately submitted Charter Art. III-8

RECORDER OF DEEDS
Bond 3.20.010
Collecting and paying over fees 3.20.030
Fees payable by credit card or debit card 3.20.070
French and Spanish archives to be kept in Jefferson Memorial Building 3.20.060
Powers and duties generally—Records—Office rules 3.20.020
Record rooms to have call boxes 3.20.050
Requirements for deeds 3.20.080
Supplies 3.20.040

REFERENDUM
Filing and publication of statements relating to initiative or recall propositions Charter Art. VI-6
How petition executed Charter Art. VI-4
Petition required; reconsideration of ordinance; submission to voters Charter Art. VI-2
Procedure employed in recall to be followed Charter Art. VI-3
What ordinance to prevail where conflict occurs Charter Art. VI-5
When to be exercised Charter Art. VI-1

REGIONAL CRIMINAL JUSTICE COMPUTERIZED INFORMATION PROCESSING SERVICE
Cooperative agreement
Authorized 3.80.010
Cancellation 3.80.030
Contents generally 3.80.020
REJIS Commission 3.80.040 et seq.
See: REJIS COMMISSION

REGISTER
Appointment of deputy registers, storekeeper and stenographer-clerk 3.18.030
Attestation and issuance of licenses and forms Charter Art. IX-2
Authority of Register to loan official documents—Receipt 3.18.060
Bond 3.18.040

REGISTER (Cont'd.)
Duty to procure and issue license plates, tags, and forms, permits and certificates 3.18.020
Fees for certified copies furnished by Register 3.18.050
General provisions
Distribution of code
Code
Register to be custodian 1.04.010
Office and duties generally 3.18.010
Powers and duties; bond; compensation Charter Art. IX-1

REJIS COMMISSION
Appointment 3.80.050
Budget 3.80.090
Bylaws 3.80.080
Dissolution 3.80.100
Duties 3.80.040
Representation 3.80.060
Terms—Vacancies 3.80.070

RELOCATION POLICY
Administrative matters
Appeals 11.05.100
Assurances—Monitoring and corrective action 11.05.070
Payments, administration of relocation 11.05.090
Recordkeeping and records and reports 11.05.080
Adoption—Enforcement
Adopted 11.05.010
Enforcement 11.05.020
Applicability 11.05.050
Assistance, relocation notices and
Notices 11.05.110
Referrals to replacement properties before displacement 11.05.120
Definitions 11.05.040
Minimum standards 11.05.060
Payments for moving and related expenses
Ineligible moving and related expenses 11.05.160
Nonresidential moves, payment for 11.05.140
Requirements for receipt of payments for actual reasonable moving and related expenses 11.05.150
Residential moves, payment for 11.05.130
Waiver of benefits 11.05.170
Purpose 11.05.030

RELOCATION SERVICES
Agreements and contracts 3.36.555
Board 3.36.565
Commissioner 3.36.560
Created—Objective—Responsibilities 3.36.550

RENDERING PLANTS
Basic requirements 11.30.020

RENDERING PLANTS (Cont'd.)
Compliance 11.30.010
Containers and delivery equipment 11.30.080
Edible meat by-products 11.30.130
Floors, walls and ceilings 11.30.040
Maintenance 11.30.030
Penalty for violation 11.30.140
Plumbing and drainage 11.30.090
Raw materials 11.30.100
Remains 11.30.070
Rules and regulations 11.30.110
Zoning 11.30.120

REPARATIONS FUND AND MIDWEST LAND DEVELOPMENT FUND
Deposit 5.100.030
Established 5.100.010
Excess payment disposition 5.100.020
Use of funds 5.100.040

RESIDENTIAL CODE
Adoption 25.11.010
Amendments 25.11.020
Penalty 25.11.030

RESTAURANTS
Emergency first aid procedures
Definition 11.42.940
Distribution of placards to establishments 11.42.944
Guidelines for training programs 11.42.946
Instructions to be posted—Penalty for violation 11.42.948
Liability for damages 11.42.950
Methods for removal of food lodged in throat 11.42.942
Food Code
Additions
Section 2-201.14 11.42.070
Section 2-301.13 11.42.080
Section 3-307.12 11.42.110
Section 3-701.132 11.42.120
Section 5-203.11 11.42.130
Section 5-204.11 11.42.140
Adopted 11.42.010
Amendments 11.42.020
Section 1-101.10 11.42.030
Section 1-201.10 11.42.040
Section 2-102.11 11.42.060
Section 201.11 11.42.050
Section 3-201.17 11.42.090
Section 3-304.17 11.42.100
Section 6-301.12 11.42.150
Section 6-501.115 11.42.160
Part II of the Food Code adopted 11.42.165

RESTAURANTS (Cont'd.)
Food Code (Cont'd.)
Penalties 11.42.170
Licenses—Gross receipts tax
Additional gross receipts license tax
Administration of Sections 11.42.276 and 11.42.278 11.42.280
Applicability and administration—Proceeds disposition 11.42.272
Dance hall license petition exemption 11.42.278
Enforcement 11.42.274
Imposed 11.42.270
Classes 11.42.240
Fees, license 11.42.245
Gross receipts tax
Exemption 11.42.265
Levied 11.42.255
Not applicable to religious, educational or charitable organizations 11.42.267
Report 11.42.260
Penalty for violation 11.42.250
Miscellaneous provisions
Healthy drink options 11.42.180

REVENUE AND FINANCE
"Round Up" Program Funds 5.76.010 et seq.
See: "ROUND UP" PROGRAM FUNDS
Aldermanic expenses
Expense account authorized 5.19.010
Fund for expenses—Use 5.19.020
Report
Available to public 5.19.040
Filing Required 5.19.030
Assessment Division 5.06.010 et seq.
See: ASSESSMENT DIVISION
Audit and accounting
Accounts and claims
Contents 5.18.040
Forwarding 5.18.050
Appropriation and transfer entries 5.18.010
Audit by certified public accountant 5.18.100
Comptroller and Board of Estimate and Apportionment accounts 5.18.080
Records—Contents 5.18.030
Reports of indebtedness made by Mayor and Comptroller 5.18.090
Treasurer's accounts 5.18.060
Trial balance—Reports 5.18.020
Worthless accounts 5.18.070
Big Brothers Big Sisters of Eastern Missouri Fund 5.92.010 et seq.
See: BIG BROTHERS BIG SISTERS OF EASTERN MISSOURI FUND

REVENUE AND FINANCE (Cont'd.)
Capital Fund 5.35.010 et seq.
See: CAPITAL FUND
City depositories
Board of Aldermen, Treasurer's report to 5.12.100
Deadline extensions 5.12.120
Delivery of applications to Treasurer 5.12.070
Duty of Treasurer to advertise for applications for certification as depositories 5.12.020
Findings 5.12.010
Funds Committee—Power to designate depositories 5.12.080
Professional assistance—Competitive process required 5.12.110
Prospective depositories to be informed of requirements 5.12.030
Responsibilities of Treasurer and Funds Committee not limited or restricted by provisions 5.12.090
Revitalization report, prospective depositories to provide 5.12.040
Statement and signatures, prospective depositories to provide 5.12.050
Treasurer to prepare report regarding lending performance of prospective depositories 5.12.060
Collection Division 5.08.010 et seq.
See: COLLECTION DIVISION
Commissions for City real estate sales
Authorized 5.20.010
Computation 5.20.030
When payable 5.20.020
Comptroller 5.04.010 et seq.
See: COMPTROLLER
Convention, Exhibition and Community Center Fund 5.36.010 et seq.
See: CONVENTION, EXHIBITION AND COMMUNITY CENTER FUND
Department of Finance 5.02.010 et seq.
See: DEPARTMENT OF FINANCE
Earnings Tax 5.22.010 et seq.
See: EARNINGS TAX
Employee fee and supplemental sales tax
Collector compensation 5.68.110
Definitions 5.68.010
Effective date—Exceptions 5.68.020
Employee fee
Collection 5.68.050
Payment 5.68.060
Employer fee—Employer obligation 5.68.070
Failure to pay fee 5.68.120
Fee return—Payment 5.68.080
Penalty for violation 5.68.130
Refund claim 5.68.100

REVENUE AND FINANCE (Cont'd.)
Employee fee and supplemental sales tax (Cont'd.)
Supplemental sales tax
Collection agreement 5.68.040
Imposed—Collection 5.68.030
Unpaid tax—Interest—Penalties 5.68.090
Fiscal reports
Annual and semiannual reports 5.16.010
Division of Audit and Accounting report 5.16.020
Officer, departmental and board reports 5.16.040
Settlement of accounts 5.16.050
Treasurer's report 5.16.030
Fund 1116 Downtown Vending District Parks Fund 5.85.010 et seq.
See: FUND 1116 DOWNTOWN VENDING DISTRICT PARKS FUND
Fund 1116 Metro Trash Services Fund 5.98.010 et seq.
See: FUND 1116 METRO TRASH SERVICES FUND
General provisions
Ordinances
Proposed board bill with associated costs requiring fiscal note 1.28.090
Hospital Fund 5.34.010 et seq.
See: HOSPITAL FUND
Hospital Revenue Fund 5.40.010 et seq.
See: HOSPITAL REVENUE FUND
Improved Wharf Fund 5.38.010 et seq.
See: IMPROVED WHARF FUND
Marriage license fees
Fee imposed 5.66.010
Monthly report—Deposit of funds—Administration 5.66.030
Payment—Collection 5.66.020
Mayor's Contingent Fund 5.42.010 et seq.
See: MAYOR'S CONTINGENT FUND
Multigraph and stores section
Created 5.62.010
Employees—Purchase of Supplies 5.62.020
Operation 5.62.030
Municipal Bridge Fund 5.46.010 et seq.
See: MUNICIPAL BRIDGE FUND
Park capital improvements fund apportionment
Annual appropriation ordinance 5.72.020
Apportionment of state funds among parks for capital improvements 5.72.040
General revenue expenditures on parks not to decrease if state sales tax funds become available 5.72.010
Historical, cultural, performing or fine arts organizations or institutions, apportionment of state funds among 5.72.030

REVENUE AND FINANCE (Cont'd.)
Pay Period Reserve Fund 5.44.010 et seq.
See: PAY PERIOD RESERVE FUND
Payroll Expense Tax 5.23.010 et seq.
See: PAYROLL EXPENSE TAX
Pet Spay, Neuter and Microchip Assistance Fund 5.95.010 et seq.
See: PET SPAY, NEUTER AND MICROCHIP ASSISTANCE FUND
Property Tax 5.26.010 et seq.
See: PROPERTY TAX
Property tax credit for eligible senior taxpayers
Definitions 5.104.020
Homestead eligibility 5.104.040
Program implementation 5.104.030
Purpose 5.104.010
Revenue distribution to be reduced by credit 5.104.060
Taxation of new construction 5.104.050
Public Art Trust Fund 5.90.010 et seq.
See: PUBLIC ART TRUST FUND
Public Transit Sales Tax 5.25.010 et seq.
See: PUBLIC TRANSIT SALES TAX
Real estate title conveyance
Certificate of Value
Filing—Panel locator number 5.70.010
Penalty—Filing requirements—Exceptions 5.70.020
Required information—Exceptions 5.70.030
Forms 5.70.050
Penalty for violation 5.70.060
Responsibility for filing and execution 5.70.040
Revenue bonds
Cancellation of bonds 5.28.060
Coupon bonds 5.28.020
Payment 5.28.010
Registered bonds
Contents—Forms 5.28.030
Principal and interest payments 5.28.050
Transfer—New bonds 5.28.040
Sale of surplus and condemned property
Disposition of proceeds 5.60.020
Donation of surplus property 5.60.027
Fire suppression and protection equipment, donation of 5.60.025
Procedure 5.60.010
Sales Tax 5.24.010 et seq.
See: SALES TAX
St. Louis Hope for the Homeless Fund 5.59.010 et seq.
See: ST.LOUIS HOPE FOR THE HOMELESS FUND
Standardization Board 5.64.010 et seq.
See: STANDARDIZATION BOARD

REVENUE AND FINANCE (Cont'd.)
Street Excavation Restoration Program Fund 5.78.010 et seq.
See: STREET EXCAVATION RESTORATION PROGRAM FUND
Street Improvement Fund 5.50.010 et seq.
See: STREET IMPROVEMENT FUND
Supply Division 5.56.010 et seq.
See: SUPPLY DIVISION
Supply purchase procedures
Advertisement—Deposits by bidders 5.58.020
Approval of purchases 5.58.150
Bonds for performance of contracts—Delivery—Packaging 5.58.160
Contract approval—Purchases without advertising—Unsuccessful bidder's check return 5.58.050
Cooperative or joint purchasing programs—Supply Commissioner authorization 5.58.015
Declining bids 5.58.170
Examination of articles—Memorandum 5.58.140
Exceptions—Supply division to purchase all supplies 5.58.010
Failure to fulfill contract 5.58.080
Food, drugs and fuel, advertisements for 5.58.090
Opening of bids 5.58.040
Perishable articles 5.58.100
Proposal blanks 5.58.030
Purchase of fire engines and other apparatus 5.58.120
Requisition for supplies not contracted 5.58.110
Successful bidder certified check 5.58.060
Vehicles, purchase of 5.58.130
Warrant 5.58.070
Tax rate and bond issue elections
Resubmitting 5.32.010
Transportation Trust Fund 5.48.010 et seq.
See: TRANSPORTATION TRUST FUND
Treasury Division 5.10.010 et seq.
See: TREASURY DIVISION
Urban Redevelopment and Neighborhood Rehabilitation Fund 5.52.010 et seq.
See: URBAN REDEVELOPMENT AND NEIGHBORHOOD REHABILITATION FUND
Use of park funds
Conflicting provisions 5.74.080
Definitions 5.74.010
Donations to be accepted 5.74.040
Expenditure for capital improvements 5.74.030
Forest Park fund 5.74.050
Lafayette Square Park fund 5.74.055
Source of revenue 5.74.060
Special fund 5.74.020
Use of funds 5.74.070

REVENUE AND FINANCE (Cont'd.)
Victims of Domestic Violence Fund 5.53.010 et seq.
See: VICTIMS OF DOMESTIC VIOLENCE FUND
Warrants
Accounts, claims and receipts 5.54.010
Certain claims, time limit on 5.54.060
Payrolls, unpaid 5.54.030
Time limits, warrant 5.54.070
To debtors to City, warrants 5.54.040
Unclaimed 5.54.020
Unpaid sums due City from City officers 5.54.050
Waterworks bonds
Interest appropriation 5.30.020
Sinking fund 5.30.010

RIGHTS
General provisions
Ordinances
Effect of repeal
On rights or actions 1.28.050
Time
Performance of acts and accrual of rights 1.24.030

RODENT, INSECT AND PEST CONTROL
Fumigation—permits and licenses
Appeals 11.08.140
Board of Examiners of Fumigators 11.08.110 et seq.
Definitions 11.08.010
Fumigant operator helper
License—Expiration 11.08.080
Required—License 11.08.070
Supervision 11.08.090
Issuance 11.08.150
License, fumigant operator's 11.08.060
Permit
Application 11.08.050
Bond 11.08.040
Required 11.08.020
Separate for each fumigation 11.08.030
Revocation 11.08.160
General regulations—fumigation
Adding warning substance to fumigant 11.08.340
Applicability 11.08.350
Authority of Fire Department 11.08.190
Doors and windows to be locked 11.08.290
Fire department and Police Department to be notified 11.08.260
First aid equipment—Safety devices 11.08.310
Handling and disposition of fumigants 11.08.330
Humans in buildings being fumigated 11.08.210
Interfering with or hindering fumigation 11.08.200
Notification of occupants 11.08.250

RODENT, INSECT AND PEST CONTROL (Cont'd.)
General regulations—fumigation (Cont'd.)
Partial fumigation 11.08.220
Persons required at fumigation 11.08.320
Powers of employees of Health Division and Fire Prevention Bureau 11.08.180
Premises not to be entered until safe 11.08.280
Preparation, premises 11.08.300
To be sealed, premises 11.08.230
Warning signs 11.08.240
Watchmen 11.08.270
Rat control
Accumulation of garbage and rubbish 11.08.520
Control required 11.08.380
Definitions 11.08.370
Dumping waste 11.08.510
Duty to maintain building in rat-free condition 11.08.490
Enforcement 11.08.550
Failure of occupants to free building of rats 11.08.480
Inspections 11.08.400
Interior harborages 11.08.460
Maintain building in rat-stopped condition, duty to 11.08.440
Notice to owner or agent 11.08.420
Notification of owner, agent or occupants of exterior rat infestation 11.08.500
Occupants of interior rat-infestation, notification of 11.08.470
Owner or agent to rat-stop and eliminate rat-harborages, failure of 11.08.430
Penalty for violation of this part 11.08.560
Permitting rat infestation 11.08.410
Removal of rat-stoppage 11.08.450
Salvageable material, accumulation of 11.08.530
Section, rat control 11.08.390
Storage of animal food 11.08.540

"ROUND UP" PROGRAM FUNDS
Capital improvements—Use 5.76.040
Deposit in Special Park Fund 5.76.020
Effective date 5.76.050
Excess payment disposition 5.76.010
Use of funds 5.76.030

RULES AND REGULATIONS
Definitions and rules of construction 1.08.010 et seq.
See: DEFINITIONS AND RULES OF CONSTRUCTION

— S —

SAFETY AND WELFARE
Board of public service Charter Art. XIII-15

SALES
General provisions
Distribution of code
Code 1.04.030
Ordinances—Printing, binding, distribution and sale 1.04.040

SALES TAX
Additional tax
House Substitute adopted by reference 5.24.080
Imposed 5.24.060
Use 5.24.070
Effective date—Time limit 5.24.040
Extension 5.24.050
House Committee Substitute adopted by reference 5.24.030
Imposed 5.24.010
Public safety—Tax on all retail sales 5.24.090
RSMo 144.010—144.510 adopted by reference 5.24.020

SATELLITE DISH ANTENNAS, SATELLITE ANTENNAS OR OTHER SIMILAR DEVICES
Building permit 11.80.040
Location 11.80.020
Placement in side yard prohibited 11.80.050
Regulations—Structures 11.80.010
Screening 11.80.030

SCHEDULE
(Note—Citations contained herein refer to sections and subsections found within Schedule, Transitional Provisions)
Assessment for taxation preserved Charter Art. Schedule-3
Auditor abolished, office of Charter Art. Schedule-13
Boards, commissions and officers abolished; exceptions Charter Art. Schedule-16
City surveyors, continuance of terms of Charter Art. Schedule-12
Continued in new offices, officers Charter Art. Schedule-10
Disposition of records, etc., of former boards and commissions Charter Art. Schedule-7
Imposing fines validated, ordinances Charter Art. Schedule-5
Municipal assembly continued Charter Art. Schedule-8
New titles to be read for former titles Charter Art. Schedule-4
Oath of office required of officers continued in office Charter Art. Schedule-18
Officers continued in office Charter Art. Schedule-11
Ordinances and proceedings as to public works validated Charter Art. Schedule-2
Preservation of status quo Charter Art. Schedule-1

SCHEDULE (Cont'd.)
Renewal and substitution of bonds Charter Art. Schedule-17
Status of offices created by ordinance Charter Art. Schedule-15
Temporary law department Charter Art. Schedule-14
Terms of office not saved to be abolished Charter Art. Schedule-9

SCHEDULES, TABLES AND GRAPHS
Transitional Provisions. See: SCHEDULE

SCHEME
(Note—Citations contained herein refer to sections and subsections found within Scheme, For the Separation and Reorganization of the Governments of the City and County of St. Louis and the Adjustment of Their Relations)
Admission to poorhouse, insane asylum, etc. Charter Art. Scheme-25
Ascertainment of county's financial condition; settlement of accounts Charter Art. Scheme-13
Assessment and collection of taxes under scheme Charter Art. Scheme-8
Authority of county court conferred on municipal assembly Charter Art. Scheme-24
Authority of municipal assembly as to revenue Charter Art. Scheme-34
Boundaries of the City of St. Louis; territory of St. Louis County Charter Art. Scheme-1
City and county surveyors Charter Art. Scheme-16
Collections payable into city treasury; payments into county treasury; appropriations by municipal assembly Charter Art. Scheme-32
Costs in criminal cases Charter Art. Scheme-29
County court to transfer public buildings, moneys, etc., to city; employees to continue; mayor may retain or discharge appointees of court Charter Art. Scheme-9
County sheriff ex-officio collector; county clerk ex-officio recorder; present recorder to continue in office; election of city recorder Charter Art. Scheme-7
Declared separated, city and county; authority of county court annulled Charter Art. Scheme-2
Election of officers for St. Louis County; judicial and representative districts established; county seat Charter Art. Scheme-3
Enumeration of children within school age; division of school property Charter Art. Scheme-38
Expenses of board of freeholders Charter Art. Scheme-39
Former county collector vested in sheriff of county, power of Charter Art. Scheme-33
Grand jurors
How paid Charter Art. Scheme-28

SCHEME (Cont'd.)
Grand jurors (Cont'd.)
How selected and summoned Charter Art. Scheme-27
Judges of election for November, 1876; returns, etc. Charter Art. Scheme-19
Justices of the peace and constables; bonds of constables and notaries Charter Art. Scheme-15
May hold real estate in county, city Charter Art. Scheme-21
Metropolitan police Charter Art. Scheme-14
Municipal assembly to provide for payment of county debt Charter Art. Scheme-11
Notaries public Charter Art. Scheme-17
Petit jurors
How paid Charter Art. Scheme-31
How selected and summoned Charter Art. Scheme-30
Powers of sheriffs of city and county; duties of city marshal Charter Art. Scheme-18
Present county court to order election November, 1876; duties and responsibilities of court in connection with separation Charter Art. Scheme-4
Prosecuting attorneys and clerks of eighth judicial district continued in office Charter Art. Scheme-26
Public officers to assist in carrying out scheme Charter Art. Scheme-20
Qualify under charter, city officers to; election of municipal assembly; city offices to be filled April, 1877 Charter Art. Scheme-12
Regulations as to animals running at large Charter Art. Scheme-35
Salaries of judicial officers Charter Art. Scheme-22
School districts interested by city limits Charter Art. Scheme-36
Sheriff, coroner and public administrator for city, election of; duties and compensation Charter Art. Scheme-5
Tax bills on property intersected by city limits Charter Art. Scheme-23
Title to public buildings, parks, etc., transferred to city; assumption of county debt by city Charter Art. Scheme-10
To assume duties of former county marshal, city marshal Charter Art. Scheme-6
Transferred to St. Louis public schools, school property Charter Art. Scheme-37

SECONDHAND AND JUNK DEALERS
Junk dealers
Definitions 8.82.140
License
Application 8.82.180

SECONDHAND AND JUNK DEALERS (Cont'd.)
Junk dealers (Cont'd.)
License (Cont'd.)
Junk merchant 8.82.170
Peddler, junk 8.82.160
Plate 8.82.200
Required 8.82.150
Revocation 8.82.190
Limitations on business 8.82.240
Misdemeanor declared 8.82.260
Posting regulations 8.82.250
Purchases from minors—Hours of operation 8.82.230
Record of purchases 8.82.210
Secondhand dealers
Cooperating with law enforcement 8.82.070
Defined 8.82.010
License
Application 8.82.040
Petition to be filed 8.82.045
Required 8.82.020
Revocation for violation 8.82.051
Tax 8.82.030
Penalty clause 8.82.137
Photograph, transaction forms and holding period 8.82.050
Purchase of cellular phones and other electronic communication devices 8.82.065
Purchase of certain articles 8.82.060
Recycling operations exempted 8.82.135
Reporting certain persons or articles 8.82.090
Sale of secondhand vehicles
Brakes 8.82.100
Certificate
Contents 8.82.110
False 8.82.120
Exception 8.82.130

SECTION OF SOCIAL SERVICE AND INVESTIGATION
Established—Personnel 12.40.010
Purposes—Duties 12.40.020
Supervisor of Social Service 12.40.030

SERVICE STATIONS
Applicability of provisions 8.83.020
Damaging or vandalizing property prohibited 8.83.050
Findings 8.83.010
Penalty for violation 8.83.060
Required services 8.83.030
Sign to indicate no restroom available 8.83.040

SEWERS AND SEWAGE DISPOSAL
Public works and improvements Charter Art. XXII-1 et seq.
See: PUBLIC WORKS AND IMPROVEMENTS

SEXUALLY TRANSMITTED DISEASE SERVICE
Clinicians and other employees 11.56.590
Created 11.56.550
Special supervising nurse 11.56.580

SEXUALLY TRANSMITTED DISEASES
Diagnostic, clinical and laboratory facilities 11.56.650
Drugs to physicians 11.56.660
Enumerated, sexually transmitted diseases 11.56.600
Orders of Health Commissioner to be obeyed 11.56.710
Penalty
Section 11.56.690 11.56.695
Section 11.56.710 11.56.765
Powers and duties of Health Commissioner 11.56.630
Prostitutes and other suspects 11.56.680
Referral of patients 11.56.640
Reports—Required 11.56.720
Sexually Transmitted Disease Service 11.56.590 et seq.
See: SEXUALLY TRANSMITTED DISEASE SERVICE
Spread of sexually transmitted diseases 11.56.690
To be confidential, reports 11.56.760

SHERIFF
Expenses 3.09.030
Powers and duties 3.09.010
Restrictions on Sheriff[redacted][92]s enforcement powers 3.09.020
Sunset clause 3.09.040

SHORT-TERM LENDING CODE
Alternative administrative citation fine for violation of Short-Term Lending Code 8.83A.090
Applicability of other regulations; conflicting provisions 8.83A.030
Approval or disapproval of application and hearing 8.83A.140
Authority to prescribe additional regulations 8.83A.070
Compliance with the Short-Term Lending Code and other regulations 8.83A.160
Contents of application 8.83A.120
Criteria for issuance of permit 8.83A.130
Definitions 8.83A.020
Display of license or permit 8.83A.150
Inspections 8.83A.060
Judicial review of orders of Commissioner; stay of enforcement of orders 8.83A.100
Legislative findings 8.83A.010
Penalty for violation of Short-Term Lending Code 8.83A.080

SHORT-TERM LENDING CODE (Cont'd.)
Permit duration; renewal; fees 8.83A.050
Permittee's duties to adhere to a "Good Neighbor Plan." 8.83A.170
Referral to Alternative Financial Assistance 8.83A.180
Renewal of permit 8.83A.200
Required, permit 8.83A.040
Severability 8.83A.110
Suspension, revocation, or denial 8.83A.190

SHORT-TERM RENTAL
Ordinance
Agent 25.57.080
Application for; non-occupied 25.57.060
Application for; occupied permit 25.57.050
Authority to prescribe additional rules and regulations 25.57.140
Definitions and general provisions 25.57.030
Grant or denial of application 25.57.100
Intent 25.57.020
Permit 25.57.040
Platforms 25.57.130
Provisions for revocation 25.57.110
Publication 25.57.090
Regulations 25.57.070
Taxes 25.57.120
Title 25.57.010
Zoning 26.76.010 et seq.
See: ZONING

SIGNATURE, SUBSCRIPTION
Definitions and rules of construction 1.08.220

SKINKER-FAUQUIER PARKING DISTRICT
Definitions 17.180.010
Designation of restricted parking zone 17.180.020
Issuance, permit 17.180.040
Penalty for violation 17.180.050
Permit use 17.180.030

SMOKE DETECTORS
Battery removal prohibited 25.52.080
Definitions 25.52.010
Enforcement and inspection 25.52.070
Installation requirements
After January 1, 1985 25.52.020
One-year compliance period 25.52.030
Location requirements 25.52.040
Owner responsibility to install, test and maintain 25.52.060
Penalty for violation 25.52.090
Type of detector 25.52.050

SMOKE FREE AIR ACT
Application of chapter to City-owned facilities 11.31.030
Declaration of establishment as nonsmoking 11.31.080
Definitions 11.31.020
Enclosed public places, prohibitions of smoking in 11.31.040
Enforcement 11.31.110
Nonretaliation; nonwaiver of rights 11.31.100
Other applicable laws 11.31.130
Penalty for violation 11.31.120
Places of employment, prohibitions of smoking in 11.31.050
Posting of signs 11.31.090
Prohibition of smoking in enclosed residential facilities 11.31.060
Title 11.31.010
Where smoking not regulated 11.31.070

SMOKE HOUSES
Compliance
Air pollution 25.36.060
Animals 25.36.040
Construction regulations 25.36.030
Definitions 25.36.010
Penalty for violations 25.36.070
Sale of food prohibited 25.36.050
Where permitted 25.36.020

SMOKING
Public areas
Definitions 11.32.060
Enforcement 11.32.090
Exceptions 11.32.095
No smoking provisions—Scope 11.32.050
Penalties for violation 11.32.100
Permitted, places where smoking 11.32.075
Places where smoking prohibited 11.32.070
Reporting 11.32.105
Retaliation prohibited 11.32.085
Signs to be posted 11.32.080
Sale of tobacco products to minors
Community service 11.32.170
Definitions 11.32.150
Penalty for violation 11.32.160
Prohibition of Selling, Distributing or Vending Without a Sign 11.32.120
Unlawful—Sale of tobacco products to minors 11.32.110
Sports arenas
Definitions 11.32.010
Penalty for violation of Sections 11.32.010—11.32.030 11.32.030
Where there is an audience 11.32.020

SNOW EMERGENCY
Conditions of motor vehicles operated on snow emergency routes 17.38.030
Declarations of the Snow Coordinator 17.38.050
Definitions 17.38.010
Depositing of snow and ice restricted 17.38.110
Interference with snow plows 17.38.120
Parking on snow emergency routes 17.38.020
Penalties 17.38.140
Provisions temporarily effective to take precedence 17.38.070
Removal 17.38.090
Routes designated, snow emergency 17.38.100
Signs to mark snow emergency routes 17.38.080
Stalled vehicle on snow emergency route 17.38.040
Studded tires, prohibited when 17.38.130
Termination of parking prohibition by the Snow Coordinator 17.38.060

SOCIAL SECURITY
City contributions 4.20.040
Deductions 4.20.030
Plan and agreement 4.20.020
Policy and purpose 4.20.010
Records, reports and administration 4.20.050

SOLDIERS' MEMORIAL BUILDING
Acceptance of gifts and handling of revenues 3.56.340
Budget 3.56.330
Commission
Duties 3.56.310
Established—Members 3.56.290
Organization 3.56.300
Payment of accounts 3.56.350
Superintendent 3.56.320

SOLICITATIONS
Canisters 8.84.100
Copy of permit 8.84.090
Definitions 8.84.010
Penalty for violation 8.84.130
Permit
Application
Contents 8.84.050
Filing time 8.84.040
Fee 8.84.060
Required 8.84.020
Revocation 8.84.110
Prohibition 8.84.030
Rules and regulations 8.84.070
Solicitation by minors 8.84.080
Using permit as endorsement 8.84.120

SOLID FUEL
- Bond
  - Beneficiaries 8.86.180
  - Conditions 8.86.170
  - Endorsement 8.86.190
  - Required 8.86.160
- Change of supply source 8.86.210
- Definitions 8.86.010
- Emergency supplies 8.86.020
- Furnishing different coal from that contracted 8.86.230
- Inspections 8.86.220
- Name, address and permit number to be displayed on vehicles 8.86.030
- Permit
  - Application
    - Contents 8.86.050
    - Investigation 8.86.060
  - Approval or disapproval
    - Appeal 8.86.070
    - Protests 8.86.080
  - Fees—Fuel peddlers 8.86.100
  - Refusal—Revocation 8.86.110
  - Required 8.86.040
  - Revocation 8.86.120
- Register 8.86.140
- Registration sticker 8.86.200
- Surety requirements 8.86.150
- Vehicles 8.86.130

SOLID WASTE DISPOSAL
- Container requirements, refuse
  - Actions, prohibited 11.02.190
  - City containers
    - Authorized use 11.02.225
    - Closest, use of required 11.02.215
    - Damaging prohibited 11.02.230
    - Moving prohibited 11.02.220
    - Number and location 11.02.210
    - Prohibited items—Placement 11.02.235
    - Responsibility for damage to container 11.02.240
    - Usage 11.02.200
    - Use required when 11.02.205
  - Collection from nonresidential premises 11.02.255
  - Confiscation of nonusable containers 11.02.175
  - Exception—Confiscation of nonusable container 11.02.180
  - Garbage preparation 11.02.160
  - Handicapped persons waiver 11.02.250
  - Non-City containers—Usage 11.02.195
  - Number posting on alley entrance 11.02.170
  - Owner and occupant responsibility 11.02.165
  - Permitted containers 11.02.145
  - Prohibited refuse 11.02.155

SOLID WASTE DISPOSAL (Cont'd.)
- Container requirements, refuse (Cont'd.)
  - Public receptacles 11.02.260
  - Refuse storage and collection—Prohibited containers 11.02.140
  - Requirements, container 11.02.150
  - Roll-out cart use 11.02.245
  - Scavenging prohibited when 11.02.185
- Definitions
  - Abatement 11.02.010
  - Collection 11.02.015
  - Demolition landfill 11.02.020
  - Demolition material 11.02.025
  - Dump 11.02.030
  - Dwelling unit 11.02.035
  - Garbage 11.02.040
  - Generally 11.02.005
  - Hauler 11.02.045
  - Inert matter disposition site 11.02.055
  - Inert matter or material 11.02.050
  - Mechanical collection 11.02.060
  - Nonresidential premises 11.02.065
  - Person 11.02.070
  - Prohibited refuse 11.02.075
  - Recyclables 11.02.077
  - Refuse 11.02.080
  - Residential premises 11.02.085
  - Roll-out cart 11.02.090
  - Sanitary landfill 11.02.095
  - Scavenging 11.02.100
  - Solid waste transfer station 11.02.101
  - Yard waste 11.02.102
- Garbage collection permits
  - Application—Permit 11.02.280
  - Fees—Permit 11.02.290
  - Inspection, vehicle—Permit 11.02.285
  - License required—Vehicle 11.02.320
  - List of permittees 11.02.315
  - Permits
    - Application—Filing 11.02.275
    - Required—Collection, hauling and disposal by persons other than Refuse Commissioner 11.02.265
    - Term 11.02.270
  - Sticker—Nontransferable 11.02.340
  - Vehicle permit—Sticker issuance and display 11.02.330
- Refuse collection and disposal generally
  - Collection and disposal—Preparation requirement—Schedule 11.02.125
  - Containers provided at Refuse Commissioner's discretion 11.02.135

SOLID WASTE DISPOSAL (Cont'd.)
Refuse collection and disposal generally (Cont'd.)
Disposal programs with other communities 11.02.115
Division of Refuse Collection 11.02.105
Duties of Refuse Commissioner 11.02.110
Nonresidential premises authorized when, collection from 11.02.130
Services universal 11.02.120
Solid waste services fee 11.02.127
Sanitary and demolition landfills
Board of Public Service permit required 11.02.355
Sign posting required 11.02.360
State permit required 11.02.350
Violations and enforcement
Designated—Violations 11.02.365
Enforcement—Procedure 11.02.380
Penalty for violations 11.02.370

SOLID WASTE MANAGEMENT DISTRICT
Executive board
Composition 11.03.040
Member selection 11.03.050
Powers 11.03.070
Findings 11.03.010
Formation of district 11.03.020
Length of terms—Vacancies 11.03.060
Purpose of district 11.03.030

SPECIAL EVENTS
Applications for special event permits 3.45.050
Date and location preference for established special events 3.45.040
Definitions 3.45.010
Departments' duty to notify of permits 3.45.090
Duties of Special Events Office 3.45.030
Office, special events 3.45.020
Processing of applications for special event permits 3.45.060
Regulations 3.45.110
Special Events Advisory Committee 3.45.100
Time deadlines 3.45.080
Vending, liquor sales and temporary signage in special event zones 3.45.070

SPECIAL TAX BILLS
Additional provisions authorized Charter Art. XXIII-12
Amendment of assessment and tax bills Charter Art. XXIII-11
Assignment and change of place of payment Charter Art. XXIII-7
Effect as evidence of liability Charter Art. XXIII-4
Installments authorized; maturity Charter Art. XXIII-2

SPECIAL TAX BILLS (Cont'd.)
Lien; priority; legal remedies for collection Charter Art. XXIII-5
New assessment to be made and tax bills issued where original assessment invalid Charter Art. XXIII-10
Ordinance ratifying irregularities Charter Art. XXIII-9
Preparation, certification and delivery Charter Art. XXIII-1
Receipt of payments by collector; bills to be marked satisfied; expiration of lien Charter Art. XXIII-8
Right of acceleration; interest on judgment Charter Art. XXIII-6
Service of notice of issuance; return Charter Art. XXIII-3

SPEED REGULATIONS
Alley speed limits 17.10.070
City-wide speed limit 17.10.030
Impeding traffic 17.10.050
Minimum speed limits 17.10.060
Parking lots 17.10.090
Posted speed limits 17.10.040
Reasonable and prudent speeds 17.10.020
Record of schedule street speed limits 17.10.080
State and local speed limits applicable 17.10.010
Washington Avenue 17.10.041

SPITTING
Enforcement 15.38.020
Posting chapter 15.38.030
Prohibited 15.38.010

ST. LOUIS ART MUSEUM
Parking
Penalty for violation 22.16.180
Permits 22.16.170
Restrictions 22.16.150
Sunday 22.16.160

ST. LOUIS TRANSITION CENTER FOR THE HOMELESS
Established 3.88.010
Facilities requirements 3.88.020
Management contract
Cost limit 3.88.030
Requirements 3.88.040

ST.LOUIS HOPE FOR THE HOMELESS FUND
Deposit in St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund 5.59.030
Established, St. Louis Hope for the Homeless Fund and Heat-Up St. Louis Fund 5.59.010
Excess payment disposition 5.59.020
Use of funds 5.59.040

STANDARDIZATION BOARD
Chief Engineer
Appointment—Employees 5.64.020
Qualifications—Bond 5.64.030
Laboratories, standardization 5.64.010

STATE
Definitions and rules of construction 1.08.230

STEAM
Exemptions 8.88.050
Gross receipts
Statement 8.88.010
Tax 8.88.020
Penalty for violation 8.88.040
Use of streets 8.88.030

STOCKYARDS, SALES STABLES AND CATTLE DEALERS
Definitions 8.90.010
Exemptions 8.90.070
Penalty for violation 8.90.060
Sale stable license—Certificate of character 8.90.040

STREET EXCAVATION RESTORATION PROGRAM FUND
Special fund created 5.78.010

STREET IMPROVEMENT FUND
Cost estimates—Appropriation 5.50.040
Deposits 5.50.050
List of unimproved streets 5.50.020
Procedures and standards 5.50.010
Selection of unimproved streets 5.50.030

STREET RAILWAYS
Application of chapter 8.92.010
City and company liability 8.92.120
Effect of Sections 8.92.030 and 8.92.050—8.92.070 8.92.090
Fare increases—Freight 8.92.170
Franchise surrender 8.92.180
Improving motive power
Authorized 8.92.150
Restrictions 8.92.160
Interference with operation of Fire Department 8.92.130
License
Fee—Failure to pay 8.92.040
Required 8.92.020
Revocation 8.92.050
Passenger indicator—Report 8.92.060
Quarterly reports 8.92.140
Regulations when tracks intersect with railroad and other streetcar tracks 8.92.110

STREET RAILWAYS (Cont'd.)
Report
Failure to make, false 8.92.080
Investigations 8.92.070
Rules and regulations for running streetcars 8.92.100
Streets and approaches to be kept clean 8.92.230
Tracks
Construction and reconstruction 8.92.210
Failure to comply with Section 8.92.200
Grade—Gauge 8.92.190
Repairs 8.92.220
Use of tracks of another company
Appeal 8.92.280
Bond—Compensation payments 8.92.270
Commission
Appointment 8.92.250
Proceedings—Report 8.92.260
Compensation 8.92.240
Limitations 8.92.290

STREETS, SIDEWALKS AND BRIDGES
Abatement of dangerous conditions
Barricades—Investigation 20.50.010
Contracts 20.50.040
Costs 20.50.050
Fund
Created 20.50.070
Use 20.50.080
Notice to owner 20.50.020
Owner's duty 20.50.060
Penalty for violation 20.50.090
Repair by City 20.50.030
Areaway, vaults in streets and sidewalks
Covers 20.22.040
Permit required
Excavation or construction in sidewalks 20.22.020
For construction or maintenance in streets 20.22.010
Vaults to be covered 20.22.030
Benches and shelters 20.51.010 et seq.
See: BENCHES AND SHELTERS
Board of public service Charter Art. XIII-13
Cash Match Alley Improvement Program 20.18.170 et seq.
See: CASH MATCH ALLEY IMPROVEMENT PROGRAM
Condemnation proceedings 20.58.010 et seq.
See: CONDEMNATION PROCEEDINGS
Construction obstructing streets and sidewalks
Additional deposit 20.32.050
Building permit and deposit required 20.32.020
Derricks 20.32.110

STREETS, SIDEWALKS AND BRIDGES (Cont'd.)
Construction obstructing streets and sidewalks (Cont'd.)
Driveways—Elevation of temporary sidewalks 20.32.070
Extent of occupation 20.32.090
Failure to keep streets clean 20.32.040
Permission to occupy may be extended beyond the limits of proposed buildings 20.32.140
Permittee to keep streets, alleys and sidewalks in clean and orderly condition 20.32.030
Protection of paving—Removal of earth and rubbish 20.32.100
Red or amber lights 20.32.130
Required, permit 20.32.010
Roof over sidewalks 20.32.080
Termination of occupation 20.32.120
Withdrawal of deposit 20.32.150
Construction, repair and maintenance of streets and alleys. See also herein specific subjects
Private streets, curbs, sidewalks and alleys
Authorized—Private streets curbs, sidewalks and alleys 20.18.130
Bond required 20.18.150
Construction of private streets, curbs, sidewalks and alleys—Permit required 20.18.140
Special tax bills 20.18.160
Public streets and alleys
City vehicles 20.18.040
Cleaning 20.18.010
Defined, repair 20.18.050
Materials for repair 20.18.070
Payment for repairs 20.18.060
Private construction
Cleaning and repair by City after construction 20.18.100
Conditions upon which permit granted 20.18.110
Deposit 20.18.120
Permit required 20.18.080
Supervision of work 20.18.090
Vehicles belonging to City employees not to be used in City work 20.18.030
Dangerous excavations
By City, fencing 20.40.030
Expenses incurred by City 20.40.040
Fencing—Filling 20.40.010
Notice to owner 20.40.020
Definitions and rules of construction 1.08.210, 1.08.240
Excavations 20.30.010 et seq.
See: EXCAVATIONS
General use restrictions
Barbed wire fences
Failure to remove 20.38.020

STREETS, SIDEWALKS AND BRIDGES (Cont'd.)
General use restrictions (Cont'd.)
Barbed wire fences (Cont'd.)
Prohibited 20.38.010
Breaking or removal of danger signals 20.38.140
Downspouts 20.38.030
Flying kites or playing in streets 20.38.170
Gasoline, oil, salt water and other liquids 20.38.090
Hoisting merchandise over thoroughfare 20.38.070
Lanterns and clocks, signposts 20.38.150
Licensing certain vehicles 20.38.130
Oil wagons and tanks 20.38.100
Placing or throwing articles on highways 20.38.060
Playing ball games 20.38.160
Projections of merchandise and other articles 20.38.050
Salt or salt water from ice cream vehicles 20.38.120
Signs 20.38.040
Unauthorized obstructions, excavations and defacing property 20.38.080
Vehicles using oils 20.38.110
House numbering
Assignment of numbers 20.16.050
Base line and central base line 20.16.030
Certificate of proper number 20.16.070
Location of numbers 20.16.060
Manner of numbering 20.16.010
New numbers 20.16.020
Rectifying lines 20.16.040
Lighting, street
On private streets 20.52.010
Utility easements, lighting of 20.52.020
Naming, street
Compliance with provisions required 20.12.010
Criteria for street names 20.12.040
Designation of honorary street names 20.12.050
New street within a resubdivision approved by the Board of Public Service, procedure for naming a 20.12.030
Procedure for naming or renaming a street 20.12.020
Obstructions and encroachments
Authority of Director of Streets 20.28.010
Banner permit 20.28.150
Bus shelter permit 20.28.170
Canvas awnings 20.28.100
Duties—Penalty 20.28.040
Extension of time for compliance 20.28.030
Landings, balconies or steps 20.28.090
Material from burned buildings 20.28.080
Notice to owner 20.28.020
Parking ramp permit
Application 20.28.120
Hearing 20.28.130

STREETS, SIDEWALKS AND BRIDGES (Cont'd.)
Obstructions and encroachments (Cont'd.)
Parking ramp permit (Cont'd.)
Required 20.28.110
Revocation—Nontransferable 20.28.140
Police, duty of 20.28.070
Removal by Director of Streets 20.28.050
Sidewalk cafe permit 20.28.160
Special tax bill 20.28.060
Openings and dedications, street
Alderman of dedication, notice to 20.14.020
Notice to be given 20.14.060
Placing signs in streets or alleys to be vacated 20.14.080
Plats to be furnished City Counselor 20.14.070
Quitclaim deeds
Issuance 20.14.030
Payments 20.14.040
Redemption of property 20.14.050
Street or alley vacation processing fee 20.14.090
Subdivision plans 20.14.010
Permits for use
Exemptions 20.46.020
Imposition and collection of permit fees—Exemptions 20.46.010
Penalty for no permit 20.46.030
Portable storage units 20.53.010 et seq.
See: PORTABLE STORAGE UNITS
Private bridges
Clearance signs 20.42.010
Inspection certificates
Closing bridge 20.42.030
Due dates 20.42.040
Required 20.42.020
Railroad tracks in streets
Deposit required 20.34.020
Existing tracks 20.34.060
Permit required 20.34.010
Refund of deposit 20.34.030
Replenishing deposit 20.34.050
Work done by City 20.34.040
Sidewalks, construction, repair and maintenance of
Authority of Street Department to repair—Sidewalks 20.26.240
Bonding of persons doing asphalt paving work for hire in the public right-of-way 20.26.175
Building demolition 20.26.150
Concrete work for hire, bonding persons doing 20.26.160
Construction or reconstruction
Failure of owner to show cause 20.26.070
Notice to owner 20.26.060
Contracts for repairs 20.26.230

STREETS, SIDEWALKS AND BRIDGES (Cont'd.)
Sidewalks, construction, repair and maintenance of (Cont'd.)
Cross slope 20.26.090
Crosswalks 20.26.100
Curbs 20.26.220
Hazardous sidewalks
Appeal—Time extension 20.26.190
Notice to repair 20.26.180
Penalty for violation 20.26.200
Issuance of building permit, bond or deposit required for 20.26.140
Nonentitlement to credit or rebate 20.26.280
Notice of costs to property owners 20.26.260
Penalty for violation of Section 20.26.160 20.26.170
Private construction 20.26.050
Property owners, notice to 20.26.250
Repairs
Costs
Computed and assessed as special tax 20.26.040
Constitute lien 20.26.030
Failure of owner to show cause 20.26.020
Notice to owner 20.26.010
Residential walks—Special revolving fund 20.26.290
Revolving fund for sidewalk repair
Created 20.26.110
Payment of special tax bill 20.26.120
Warrant by Comptroller 20.26.130
Special tax lien 20.26.270
Tax bill for sidewalk repair—Issued when 20.26.210
Width requirements 20.26.080
Structures overhanging or crossing streets
Fee for permit 20.24.060
Inspections 20.24.070
Permit required
Awning, fixed 20.24.030
Bridge or support 20.24.010
Existing structures 20.24.040
Fixed canopy 20.24.020
Right to require removal 20.24.080
Work to be done under supervision of Directors of Streets and Public Safety 20.24.050
Temporary closing of streets
Authority of Director of Streets 20.20.010
Duty of police 20.20.030
Placarding 20.20.040
Removal of placards 20.20.050
Use prohibited 20.20.020
Trash containers
Advertising on containers 20.54.040
Condition of containers 20.54.060
Container specifications 20.54.030

STREETS, SIDEWALKS AND BRIDGES (Cont'd.)
Trash containers (Cont'd.)
Indemnity 20.54.070
Insurance 20.54.080
Placement 20.54.050
Privilege to highest bidder 20.54.010
Term 20.54.020
Use by merchants
Annual renewal 20.36.080
Cost, insurance, inspection and display of permit, permit 20.36.050
Merchandise display—Permit required 20.36.010
Permits for a period of three (3) days or less 20.36.040
Prohibitions and penalties 20.36.070
Public hearing 20.36.030
Temporary use for shipping and receiving 20.36.060
Width of sidewalk areas 20.36.020

SUITS, ACTIONS AND OTHER LEGAL PROCEEDINGS
General penalty 1.12.050 et seq.
See: GENERAL PENALTY

SUPPLY DIVISION
Commissioner
Bond 5.56.030
Qualifications 5.56.020
Department supply reports 5.56.060
Deputy Commissioner—Employees 5.56.040
Disposition of unfit property 5.56.100
Monthly requisitions 5.56.090
Office of Supply Commissioner created 5.56.010
Perpetual supply inventory 5.56.050
Return lists of property
Contents 5.56.070
Recording 5.56.080

SURVEYORS
License
Application 8.96.020
Display 8.96.040
Fee—Bond 8.96.030
Number on plats 8.96.050
Required 8.96.010

SWIMMING POOL REGULATIONS
Adjacent areas 11.79.210
Concessions, pool 11.79.220
Construction materials, pool 11.79.110
Decks 11.79.160
Definitions 11.79.010
Detailed plans 11.79.040
Diatomaceous earth filters 11.79.320
Disinfection 11.79.330

SWIMMING POOL REGULATIONS (Cont'd.)
Diving pool water depth 11.79.140
Drainage 11.79.170
Fencing 11.79.200
Floor slopes 11.79.120
General sanitary standards 11.79.090
Hose bibs 11.79.180
Inlets 11.79.260
Inspections 11.79.070
Ladders, recessed steps, and stairs 11.79.150
Lighting and electrical requirements 11.79.250
Loading, swimmer 11.79.100
Location of depth markings 11.79.230
Operating records 11.79.060
Operation 11.79.050
Outlets 11.79.270
Outside curb 11.79.190
Penalty 11.79.500
Perimeter overflows 11.79.280
Personnel regulations 11.79.460
pH control 11.79.340
Plans and specifications approval 11.79.030
Pool water depths 11.79.130
Preparation facilities, swimmer 11.79.370
Recirculating system 11.79.300
Records 11.79.440
Rules and regulations 11.79.020
Safety requirements—Lifesaving equipment 11.79.360
Sand filters 11.79.310
Shower facilities 11.79.380
Size of depth markings 11.79.240
Skimmers 11.79.290
Spas 11.79.490
Special requirements for indoor swimming pools 11.79.480
Spray pools 11.79.410
Suits and towels 11.79.470
Supervision of swimmers 11.79.450
Swimming pool operation 11.79.420
Testing equipment 11.79.350
Toilets 11.79.390
Treatment facility operation 11.79.430
Variance 11.79.080
Wading pool 11.79.400

— T —

TANGIBLE PERSONAL PROPERTY
Definitions and rules of construction 1.08.250

TATTOO PARLORS
Approval of application 8.97.070
Board of public service to adopt forms and promulgate rules 8.97.160

TATTOO PARLORS (Cont'd.)
Contents of application 8.97.030
Definitions 8.97.010
Hearing on application 8.97.060
Hours 8.97.090
License collector prohibited from issuing license 8.97.180
Neighborhood petition, revocation of licenses by 8.97.140
Noise and conduct 8.97.110
Number of chairs 8.97.120
Regulations 8.97.080
Renewal of licenses 8.97.130
Revocation of licenses for violation 8.97.150
Sanitation and lighting 8.97.100

TAX INCREMENT FINANCING COMMISSION
Amendments 3.83.050
Appointment 3.83.020
Creation—Commission 3.83.010
Powers 3.83.040
Terms 3.83.030

TAXATION
Electrical Companies Gross Receipts Tax 23.30.010 et seq.
See: ELECTRICAL COMPANIES GROSS RECEIPTS TAX
Exclusion from taxes
Payments, excluded 23.29.010
Gas Company Gross Receipts Tax 23.36.010 et seq.
See: GAS COMPANY GROSS RECEIPTS TAX
Lateral sewer line repair fee
Bidder and subcontractor wage payment 23.40.090
Charge
Collection 23.40.050
Effective date 23.40.030
To be levied 23.40.020
Comptroller authority—Report 23.40.060
Contracting for repairs 23.40.080
Cost of repair—Payment from special account 23.40.010
Minority participation 23.40.110
Repair program requirements 23.40.100
Report review 23.40.070
Special account—Established 23.40.040
Unpaid bills—Enforcement collection 23.40.120
Licenses taxes Charter Art. XX-1 et seq.
See: LICENSES TAXES
Natural gas transportation license fee
Amount designated 23.41.030
Confidential information 23.41.050
Definitions 23.41.010
Effective date of fee 23.41.060

TAXATION (Cont'd.)
Natural gas transportation license fee (Cont'd.)
License fee required 23.41.020
Payment schedule—Penalty 23.41.040
Special tax bills Charter Art. XXIII-1 et seq.
See: SPECIAL TAX BILLS
Telephone and Telegraph Companies Gross Receipts Tax 23.32.010 et seq.
See: TELEPHONE AND TELEGRAPH COMPANIES GROSS RECEIPTS TAX
Telephone Company Alternative Tax 23.34.010 et seq.
See: TELEPHONE COMPANY ALTERNATIVE TAX
Water Works Revenue Fund Tax 23.38.010 et seq.
See: WATER WORKS REVENUE FUND TAX

TAXICABS AND SERVICE CARS
Certificate of convenience and necessity
Additional taxicabs—Fee 8.98.035
Amendment of certificate—Reserve taxicab—Fee 8.98.053
Appearance, vehicle driver 8.98.101
Application—Certification of convenience and necessity 8.98.011
Certificate of inspection 8.98.149
Discontinuing service 8.98.047
Display of taxicab number and business name of certificate holder 8.98.119
Distinctive colors for each company 8.98.113
Hearing—Certificate of convenience and necessity 8.98.017
Inspection
Failure to appear or pass 8.98.167
Fee—Penalty for violation 8.98.160
Requirements 8.98.155
Issuance—Factors—Certificate of convenience and necessity 8.98.023
List of drivers to be filed 8.98.137
Noncompliance with state statutes—Suspension or revocation of certificate of convenience and necessity and licenses 8.98.065
Not transferable, certificate 8.98.041
Notice of violation 8.98.161
Number of taxicabs in operation 8.98.125
Offices 8.98.131
Permitting an unlicensed taxicab driver to operate 8.98.095
Records of drivers and vehicles 8.98.143
Revocation—Hearing—New license 8.98.059
Rules and regulations 8.98.005
Suspension or revocation of certificate of convenience and necessity and the licenses
Hearing 8.98.077

TAXICABS AND SERVICE CARS (Cont'd.)
Certificate of convenience and necessity (Cont'd.)
Suspension or revocation of certificate of convenience and necessity and the licenses (Cont'd.)
Public welfare 8.98.071
Taximeters 8.98.107
Vehicle information—Certificate of convenience and necessity 8.98.083
Definitions and exemptions
Certain types of vehicles exempt 8.98.003
Definitions 8.98.001
Director of Streets—Taxicab Duties and Responsibilities 8.98.473 et seq.
See: DIRECTOR OF STREETS—TAXICAB DUTIES AND RESPONSIBILITIES
Hotel and motel courtesy transportation vehicles
Annual license fees 8.98.705
Compliance with inspections and operator's license conditions applicable to taxicabs 8.98.695
Liability insurance required 8.98.700
License required 8.98.690
Insurance—Taxicabs
Accident reports
Contents 8.98.183
Failure to file—False 8.98.184
Amount—Insurance 8.98.172
Cancellation or lapse 8.98.185
Endorsement—Insurance 8.98.173
Licensed firm—Insurance 8.98.171
Operation without prohibited 8.98.186
Penalty for violation 8.98.189
Required 8.98.170
Unsatisfied judgments 8.98.188
Windshield sticker 8.98.187
Licensing—Taxicabs
County taxicabs 8.98.277
Display of revoked license 8.98.275
Fastening plate to vehicle 8.98.263
Fee 8.98.257
Issuance—Certificate of convenience and necessity—Required 8.98.239
Number—Metal plate—Duplicates 8.98.251
Other taxes and licensing requirements 8.98.245
Penalty for violation of Section 8.98.227 8.98.233
Required 8.98.227
Transfers—Counterfeit plates 8.98.269
Registration of taxicab drivers
Annual report and tax 8.98.395
Change of registration 8.98.383
Forms, registration 8.98.359
Penalty for violation of Section 8.98.347 8.98.353
Photographs 8.98.377
Physical exam—Driving skills 8.98.371
TAXICABS AND SERVICE CARS (Cont'd.)
Registration of taxicab drivers (Cont'd.)
Refusal 8.98.389
Required 8.98.347
Sworn statement 8.98.365
Regulation for taxicabs
Authorization cards 8.98.323
Defacing—Posting license 8.98.311
License required 8.98.281
Meter—Position of meter 8.98.335
Posting fares 8.98.305
Radar and short wave radio equipment prohibited 8.98.329
Rate on doors—Fare to be displayed on taxicab doors 8.98.293
Rear view mirror 8.98.287
Receipts—Posting 8.98.317
Taxicab marking and equipment 8.98.341
Top light 8.98.299
Responsibilities and regulations—Taxicab drivers
Appearance, driver 8.98.455
Conduct, drivers' 8.98.431
Deceiving passengers 8.98.443
Discrimination 8.98.449
Driver's registration and taxicab operator's license suspension 8.98.467
Entering stands 8.98.425
License suspensions 8.98.461
Limitation on number of passengers carried 8.98.407
More than one customer 8.98.419
Not to leave cab, driver 8.98.403
Revocation or suspension of state chauffeur's license 8.98.469
Sleeping in cab 8.98.437
Soliciting 8.98.413
Suspension—Notification—Grievance 8.98.468
When on duty—Duties of driver 8.98.401
Service cars
Additional cars 8.98.650
Applicability of part 8.98.550
Certificate of convenience and necessity
Application
Contents 8.98.580
Hearing 8.98.585
Routes 8.98.590
Schedules 8.98.595
Determination of issuance 8.98.600
Revocation or suspension
Board powers 8.98.615
Corporations 8.98.610
Hearing—Time—Copies 8.98.605
Definitions 8.98.545
Discontinuance of service 8.98.655

TAXICABS AND SERVICE CARS (Cont'd.)
Service cars (Cont'd.)
Inspections 8.98.665
Insurance
Filing 8.98.640
Required—Amounts—Endorsement 8.98.635
Sticker 8.98.645
Judgments against owners 8.98.630
License
Counterfeit—Transfer 8.98.565
Number—Plate 8.98.560
Required—Application—Certificate of convenience and necessity 8.98.555
Tax
Amount 8.98.575
Limited 8.98.570
Penalty for violation 8.98.685
Rules and regulations 8.98.670
Stops and stands 8.98.675
Subpermit number 8.98.620
Taking on and discharging passengers 8.98.680
Transfer of rights 8.98.660
Vested rights 8.98.625

TELEPHONE AND TELEGRAPH COMPANIES GROSS RECEIPTS TAX
Annual reports 23.32.010
Bond 23.32.060
Comptroller's powers 23.32.070
Examine books—Deficiencies 23.32.020
Generally 23.32.030
Gross receipts tax 23.32.050
Penalty for violation of Sections 23.32.060 and 23.32.070 23.32.080
Statement of gross receipts 23.32.040

TELEPHONE COMPANY ALTERNATIVE TAX
Comptroller's powers 23.34.040
Effect of chapter 23.34.080
Gross receipts tax 23.34.020
Statement of gross receipts 23.34.030
Telecommunications providers and fiber network providers to pay tax 23.34.010

TENANT, OCCUPANT
Definitions and rules of construction 1.08.260

TENSES
Definitions and rules of construction 1.08.270

THEATERS, SHOWS AND OTHER PUBLIC AMUSEMENTS
Athletic and sporting events 8.100.460 et seq.
See: ATHLETIC AND SPORTING EVENTS

THEATERS, SHOWS AND OTHER PUBLIC AMUSEMENTS (Cont'd.)
Employment agencies, theatrical
Bond 8.100.370
Definitions 8.100.330
License
Application 8.100.360
Required 8.100.340
Part to be posted 8.100.380
Generally 8.100.010
Golf courses 8.100.390 et seq.
See: GOLF COURSES
Shows, exhibitions and roundabouts
Contents of permits and licenses 8.100.190
Definitions 8.100.020
Designated areas
Amendments and modifications 8.100.180
Character 8.100.140
Filing 8.100.160
Procedures 8.100.130
Public hearing 8.100.150
Records 8.100.170
When use required 8.100.120
License
Charitable purposes 8.100.080
Fee
Circuses 8.100.040
Roundabout 8.100.060
Transient tent show 8.100.050
Permit required 8.100.090
Required 8.100.030
Transfer 8.100.100
Permit—Conditions for granting 8.100.110
Revocation of license
Notice—Refund 8.100.210
Show to cease 8.100.220
Theaters
Age of picture machine operator 8.100.270
Defined 8.100.230
Fees—Exemptions 8.100.250
Firearms in theaters 8.100.260
Other taxes 8.100.310
Penalty for failure to pay tax 8.100.320
Rules and regulations for operation of picture machines 8.100.280

THEATRICAL BARGES
Applicability of chapter requirements 25.40.010
Approval of Building Commissioner—Exit door requirements 25.40.030
Calcium limelights prohibited—Rearrangement of stage ordered by Building Commissioner 25.40.100

THEATRICAL BARGES (Cont'd.)
Curtains, inspection of by Building Commissioner 25.40.080
Doors from stage to auditorium must be metal-clad 25.40.110
Electrical wiring and appliances—Inspection and approval 25.40.150
Exits—Size and number—Designation 25.40.040
Fees, inspection—Posting of certificate of inspection 25.40.180
Firefighting equipment generally 25.40.160
Fireproof paint required—Curtains to be less inflammable 25.40.090
Hand railings required 25.40.020
Inspection—Right of entry—Interference prohibited 25.40.120
License required—Building Commissioner's approval 25.40.170
Lighting requirements generally 25.40.140
Programs to show exits 25.40.050
Proscenium—Fireproof curtain—Operation and construction 25.40.070
Seats—Distance between—Maximum number between aisles 25.40.060
Skylights required—Manner of construction—Substitutes 25.40.130

THIRD-PARTY FOOD DELIVERY SERVICES
Base Pay, Gratuities, and Payment to Delivery Drivers 8.122.040
Business License 8.122.030
Definitions 8.122.010
Exemptions 8.122.050
Third-Party Fees 8.122.020

TICKET BROKERS
Charge limited 8.102.030
Defined, railroad ticket broker or dealer 8.102.050
License—Place of business—Expiration 8.102.020
Owner 8.102.040
Railroad or steamboat broker
Bond 8.102.130
Excursion or commutation tickets, sale of nontransferable mileage 8.102.100
License
Required 8.102.060
Revocation 8.102.080
Refunds 8.102.120
Sale of nontransferable railroad tickets 8.102.140
Schedule 8.102.110
Tickets must be issued by existing company 8.102.090
Required, license 8.102.010
Resale a higher price 8.102.035

TIME
General provisions 1.04.010 et seq.
See: GENERAL PROVISIONS

TIRES
Tire storage. See: HEALTH AND SAFETY

TOWEL SUPPLY COMPANIES
License—Required 8.104.010

TRAFFIC AND TRANSPORTATION ADMINISTRATOR
Appointment of assistants 17.04.080
Authority to establish traffic regulations 17.04.090
Develop Traffic Calming Policy, authority to 17.04.100
Established, Traffic and Transpiration Division—Administrator appointed 17.04.010
Powers and duties
Design preparation 17.04.040
Generally 17.04.020
Highway, transit and parking planning 17.04.030
Research and education 17.04.050
Studies, transportation 17.04.060
Transportation alternatives 17.04.070

TRAFFIC CODE
Automated camera enforcement systems
Assessment 17.07.080
Definitions 17.07.010
Implementation 17.07.060
Location identification 17.07.050
Program authorized 17.07.020
Prosecution 17.07.100
Public awareness 17.07.070
Revenue 17.07.110
Supervision 17.07.030
Vendor 17.07.040
Warning notices 17.07.090
Bicycles and similar devices 17.36.010 et seq.
See: BICYCLES AND SIMILAR DEVICES
Definitions
Accident 17.02.020
Alley, alleyway 17.02.030
Angle parking 17.02.040
Arterial or collector street 17.02.050
Barricade 17.02.060
Barrier line 17.02.070
Bicycle, tricycle 17.02.080
Bicycle/pedestrian right-of-way 17.02.081
Bus zone 17.02.100
Bus 17.02.090
Camper 17.02.110
Center line 17.02.130
Central traffic district 17.02.120
Chauffeur 17.02.140

TRAFFIC CODE (Cont'd.)
Definitions (Cont'd.)
Commercial vehicle 17.02.150
Controlled access highway 17.02.295
Controlled or limited access highway 17.02.160
Crosswalk 17.02.170
Curb loading zone 17.02.190
Curb or street market 17.02.200
Curb 17.02.180
Driver 17.02.210
Driveway 17.02.220
Emergency vehicles 17.02.230
Equestrian 17.02.240
Fire lane 17.02.250
Generally 17.02.010
Highway 17.02.260
Homemade trailer 17.02.265
Intersection 17.02.270
Lane line 17.02.280
Lateral boundary 17.02.290
Motor vehicle 17.02.300
Motorcycle 17.02.310
Motorized bicycle 17.02.315
Night time 17.02.320
Official time standard 17.02.330
Official traffic control devices 17.02.340
One-way street 17.02.350
Owner 17.02.360
Park, parking 17.02.370
Parking lot 17.02.380
Pedestrian 17.02.390
Person 17.02.400
Police officer 17.02.410
Private road or driveway 17.02.420
Public holidays 17.02.430
Railroad 17.02.440
Recreation motor vehicle 17.02.450
Residential area 17.02.460
Right-of-way 17.02.470
Roadway 17.02.480
Sidewalk 17.02.490
Stand or standing 17.02.495
Stop or stopping 17.02.505
Stop 17.02.500
Street 17.02.510
Taxicab 17.02.520
Traffic-control signal 17.02.540
Traffic 17.02.530
Trailer 17.02.550
Truck-tractor or tractor 17.02.570
Truck 17.02.560
Vehicle 17.02.580

TRAFFIC CODE (Cont'd.)
Election day parking
Duties of Traffic and Transportation Administrator 17.26.020
Parking permitted—Limitations 17.26.010
Penalty 17.26.040
Unlawful to park vehicle 17.26.030
Emergency vehicles 17.14.010 et seq.
See: EMERGENCY VEHICLES
Enforcement and obedience
Authority of Police, Fire Department and school crossing guards 17.06.010
Obedience to police officers, firemen and school crossing guards 17.06.020
Equipment required on vehicles
Brakes 17.32.100
Excessive noise 17.32.040
Exhaust system 17.32.050
Headlamps 17.32.070
Horns and warning devices 17.32.030
Lights on motorcycles 17.32.090
Motor vehicles to be operated and maintained in safe condition 17.32.010
Mud flaps required on certain vehicles 17.32.130
Rearview mirrors 17.32.060
Restrictions as to tire equipment 17.32.120
Safety glass 17.32.020
Tail lamps and reflectors 17.32.080
Visibility 17.32.110
Establishment of electric traffic signals
Accident experience 17.08.370
Generally 17.08.310
Interruption of continuous traffic 17.08.330
Large volumes of traffic 17.08.350
Minimum vehicular volume 17.08.320
Pedestrian volume, minimum 17.08.340
School crossings 17.08.360
Loading zones and entrance clearances
Appropriate signs 17.22.040
Driveway clearance 17.22.080
Entrance clearance 17.22.070
Exceptions 17.22.090
Loading zone permits
Application 17.22.020
Issuance 17.22.030
No signs without permit 17.22.050
Public use as traffic improvement 17.22.060
Required—Term and fees 17.22.010
Miscellaneous traffic rules
Accidents involving death, personal injury or damage to vehicle or property 17.16.340
Blood alcohol content 17.16.320
Boarding in motion 17.16.170

TRAFFIC CODE (Cont'd.)
Miscellaneous traffic rules (Cont'd.)
Breath analysis tests 17.16.310
Carts, wagons and equestrians 17.16.230
Crossing fire hose 17.16.010
Damaging unattended vehicle or other property, duty upon 17.16.360
Driver training and testing prohibited—When 17.16.380
Duty to give information and render aid 17.16.350
Evidence to determine levels of intoxication 17.16.300
Exceptions—Driving on right side of roadway 17.16.100
Excessive noise 17.16.180
Failure to yield 17.16.140
False reports 17.16.370
Following too closely 17.16.130
Funeral processions 17.16.020
Headlight glare 17.16.410
Impeding and interfering with pedestrian and vehicular traffic 17.16.275
Lighted lamps 17.16.400
Limitations on backing 17.16.050
Obstruction to driver's view of driving mechanism 17.16.070
Opening and closing vehicle doors 17.16.060
Operation of bicycles by officers 17.16.450
Outside of vehicles, riding on 17.16.280
Overloading 17.16.080
Painted lines or markings 17.16.090
Passing regulations 17.16.110
Permits required—Processions 17.16.030
Placing card, ticket, advertisement or paper on vehicle 17.16.250
Projections on vehicles 17.16.160
Putting glass, etc., on street prohibited 17.16.260
Railroad train not to block street 17.16.390
Reckless driving 17.16.330
Riding of bicycles, reckless 17.16.420
Roadway laned for traffic, driving on 17.16.120
Safety of pedestrians, cyclists, and motor vehicle occupants 17.16.460
Shortcutting traffic prohibited 17.16.440
Sidewalk or bicycle/pedestrian right-of-way, driving upon 17.16.040
Soliciting riders 17.16.200
Sun screening devices applied to the windshield or windows of motor vehicles 17.16.415
Transporting animals 17.16.220
Turning movements and required signals 17.16.150
Unattended vehicles 17.16.210

TRAFFIC CODE (Cont'd.)
Miscellaneous traffic rules (Cont'd.)
Unauthorized vehicles on Hodiamont right-of-way prohibited 17.16.430
Under the influence, driving 17.16.290
Use of vehicle to display advertising 17.16.240
Vehicle regulations relating to school buses 17.16.190
Motorcycles and motorized bicycles 17.18.010 et seq.
See: MOTORCYCLES AND MOTORIZED BICYCLES
Motorized scooters 17.37.010 et seq.
See: MOTORIZED SCOOTERS
Parking
Homemade trailers 17.24.080
Limited-Parking for certain purposes—Prohibited 17.24.030
Prohibited parking 17.24.070
Regulations, parking 17.24.010
Schedule of restricted streets 17.24.020
Stopped vehicles 17.24.040
Unauthorized moving of vehicles 17.24.060
Vehicle equipment 17.24.050
Pedestrians' rights and duties 17.20.010 et seq.
See: PEDESTRIANS' RIGHTS AND DUTIES
Penalties
Class I general offense 17.40.010
Conviction on alcohol- or drug-related traffic offense—Costs 17.40.030
Designated, penalties 17.40.020
Moving violations in construction or work zones 17.40.040
Regulations, traffic. See also herein specific subjects
At intersections, turning movements 17.08.490
Commercial vehicle loading
Applicability of provisions 17.23.020
Penalty for violation 17.23.030
Prohibited hours 17.23.010
In general 17.08.300
One-way streets 17.08.510
Parking restrictions 17.08.480
Pedestrian walk phases 17.08.460
Prohibited parking 17.08.470
Record of regulations—Review board 17.08.520
Special purpose stop signs 17.08.440
Special stop signs
Churches 17.08.430
Generally 17.08.400
Playgrounds 17.08.420
Schools 17.08.410
Speed limits 17.08.500
Stop signs
All approaches 17.08.380
Two-way approaches 17.08.390

TRAFFIC CODE (Cont'd.)
Regulations, traffic. See also herein specific subjects (Cont'd.)
Turning movements
Limitations on turning around 17.12.020
Position and method, required 17.12.010
Required position and method of turning 17.12.030
Yield signs 17.08.450
Snow emergency 17.38.010 et seq.
See: SNOW EMERGENCY
Speed regulations 17.10.010 et seq.
See: SPEED REGULATIONS
Street cleaning
Area prohibited between 3:00 a.m. and 7:00 a.m 17.28.060
Between 2:00 a.m. and 7:00 am, area prohibited 17.28.070
Exceptions 17.28.050
Installation of signs 17.28.020
Length of prohibition 17.28.030
Maximum area of prohibition 17.28.040
Parking prohibited during certain hours 17.28.010
Traffic and Transportation Administrator 17.04.010 et seq.
See: TRAFFIC AND TRANSPORTATION ADMINISTRATOR
Traffic Violation Bureau 17.34.010 et seq.
See: TRAFFIC VIOLATION BUREAU
Traffic-control devices
Authority to install traffic-control devices 17.08.010
Certain buses and trucks to stop at railroad crossing 17.08.240
Church stops 17.08.100
Closing of traffic at schools 17.08.190
Display of unauthorized traffic-control devices 17.08.210
Exceptions—Obedience to traffic-control devices 17.08.030
Federal signs, symbols and markings, authority to use 17.08.250
Implementation of Section 17.08.190 17.08.200
Lanes, traffic 17.08.220
Nonfunctioning traffic-control devices—Vehicle procedures 17.08.035
Obedience to traffic-control devices 17.08.020
Official traffic-control devices—Presumption of legality 17.08.040
One-way streets and rotary traffic islands 17.08.060
Playground stops 17.08.090
Replacement, stop sign 17.08.075
School stops 17.08.080

TRAFFIC CODE (Cont'd.)
Traffic-control devices (Cont'd.)
Signal indicating approach to train, obedience to 17.08.230
Special purpose stops 17.08.070
Stop and yield signs—Generally 17.08.050
Tampering with traffic-control devices 17.08.180
Traffic-control signal colors and terms
"Walk" and "Don't Walk." 17.08.160
Flashing indications 17.08.150
Green indication 17.08.120
Lane direction control 17.08.170
Provisions re 17.08.110
Red indication, steady 17.08.130
Steady yellow indication 17.08.140
Warning signs 17.08.105
Trucks
Exceptions—Truck traffic prohibited 17.30.010
In excess of 26,000 pounds, trucks 17.30.022
Lift gates in retracted position 17.30.060
Noncommercial pickup truck—Parking 17.30.025
Oversize load signs to be removed when 17.30.045
Parking 17.30.020
Prohibited in certain area 17.30.021
Projecting treads on metal tired vehicles 17.30.050
Size and weight limits 17.30.030
Special permits 17.30.040
Transportation of hazardous materials 17.30.070
Valet parking zones
Establishment of valet parking zones 17.25.010
Penalties 17.25.050
Permit, valet 17.25.030
Special valet zones and selection of operators, establishment of 17.25.040
To operate a valet parking service, permit 17.25.020

TRAFFIC VIOLATION BUREAU
Designation of fines and offenses 17.34.020
Payment of fines—Time limits 17.34.040
Under administration of Clerk of City Court 17.34.010
Violation notice 17.34.030

TRAILER PARKS
Definitions 25.44.010
Fire protection 25.44.090
Laundry facilities 25.44.060
License—Required—Fee 25.44.020
Location of park 25.44.030
Other uses prohibited 25.44.110
Park plan requirements 25.44.040
Refuse disposal 25.44.080
Register of occupants 25.44.100
Revocation of license 25.44.120
Sanitation facilities 25.44.050

TRAILER PARKS (Cont'd.)
Sewage disposal 25.44.070
Violation—Penalty 25.44.130

TRANSPORTATION TRUST FUND
Appropriation
Authorized 5.48.030
City obligation 5.48.060
Excesses 5.48.050
Purpose 5.48.040
Established 5.48.010
Sales tax deposit 5.48.020

TREASURER
Department of finance Charter Art. XV-24

TREASURY DIVISION
Accounting books 5.10.040
Assistant Treasurers—Paymasters—Clerks 5.10.100
Bonds or coupons—Daily reports 5.10.020
Cash on hand statement 5.10.060
Daily deposits 5.10.070
Office rules and regulations 5.10.080
Payroll accounts—Daily reports 5.10.030
Subordinate bonds 5.10.110
Treasurer—Bond 5.10.010
Unauthorized uses of public money—Forfeiture of office 5.10.090
Warrants 5.10.050

TRESPASSING
City Jail
Authorized persons 15.74.140
Penalty for violation 15.74.150
Prohibited 15.74.130
Generally
Prohibited 15.74.120
Schools
Being on grounds after dark 15.74.070
Bothering students 15.74.060
Definitions 15.74.010
Disturbing the peace 15.74.020
Language and conduct 15.74.030
Parking on grounds 15.74.100
Penalty for violation of Sections 15.74.010—15.74.080 15.74.090
Permission required to be on grounds 15.74.050
Trespasser to leave 15.74.040
Unauthorized person on grounds 15.74.080
Violation of Section 15.74.100, penalty for 15.74.110

TUBERCULOSIS
Examination by City Physician 11.56.490
Premises examination 11.56.520
Rules 11.56.480

TUBERCULOSIS (Cont'd.)
Sputa exam
Health Commissioner duties 11.56.500
Report and record 11.56.510

— U —

UNDERGROUND DISTRICT
Acceptance of Sections 23.42.010—23.42.230 required 23.42.200
Applicability of Sections 23.42.010—23.42.230 to certain corporations 23.42.190
Board of Public Service 23.42.080
Bond 23.42.100
Certain apparatus may remain overhead 23.42.020
City purchase of conduits 23.42.130
Common trench 23.42.170
Conduit
Construction—Changes 23.42.150
Maintenance 23.42.140
District described 23.42.010
Excluded persons 23.42.090
Failure to put wires underground, penalty for 23.42.050
Leasing or subletting conduit space 23.42.230
No permit, penalty for 23.42.120
Overhead wire removal
Board of Public Service orders 23.42.260
Required 23.42.240
Yearly amount 23.42.250
Penalty for placing wires above surface 23.42.030
Permit required 23.42.070
Prices for services 23.42.220
Removal of poles and fixtures 23.42.060
Street repair 23.42.160
Termination of rights 23.42.210
Time limit 23.42.180
Transmission of electricity for communication 23.42.110
Wires shall be an obstruction—Exception 23.42.040

UNDERTAKERS
Equipment required 8.106.070
License
Gross receipt statement 8.106.030
Permanent place of business 8.106.040
Required 8.106.010
Separate for each place of business 8.106.050
Obtaining possession of body
Authority 8.106.090
Commissions or rewards 8.106.100
Place of conducting funeral 8.106.060
Surrender of body 8.106.080

URBAN REDEVELOPMENT AND NEIGHBORHOOD REHABILITATION FUND
Deposits 5.52.020
Established 5.52.010
Payments 5.52.030

— V —

VANDALISM
Additional measure 15.78.050
Damaging public lights 15.78.090
Defined 15.78.010
Evidence—Conviction 15.78.030
Legal title to premises 15.78.040
Penalty for violation of Sections 15.78.010—15.78.050 15.78.060
Police duties 15.78.080
Prohibited 15.78.020
Property damage 15.78.070

VAULT CLEANERS
Bond 8.108.030
License
Fee—Terms 8.108.020
Required 8.108.010
Manner of cleaning vaults 8.108.040

VEHICLE TOWING CODE
Abandoned and illegally parked vehicles
Definitions 17.56.010
Removal—Reasons enumerated 17.56.020
Final disposition
Notice of final disposition 17.56.210
Provisions re 17.56.200
Impoundment and redemption
Fee for storage 17.56.180
Impoundment
Duration 17.56.150
Required 17.56.140
Investigation of theft 17.56.160
Notice to owner upon impoundment 17.56.170
Redemption—Procedure 17.56.190
Miscellaneous provisions
Authority of Street Director 17.56.230
Penalty for violation 17.56.240
Property owner—Responsibility 17.56.220
Removal
Appeals 17.56.060
Bids 17.56.090
By police, removal 17.56.030
Certain requirements—Contract 17.56.100
Contracts—Authorized 17.56.080
Fee for removal 17.56.130
Notification by the Director of Streets 17.56.050

VEHICLE TOWING CODE (Cont'd.)
Removal (Cont'd.)
On private land
Assessment 17.56.120
Notice of removal 17.56.070
Removal by the Director of Streets 17.56.040
Stolen vehicles—Notification—Removal 17.56.055
Term 17.56.110

VEHICLES AND TRAFFIC
Bridge toll gates
Payment of toll required 17.86.010
Penalty for violation 17.86.020
Child passenger restraint systems
Liability limitations 17.82.040
Penalty for violation 17.82.030
Public carriers exempted 17.82.020
Required 17.82.010
Circuit Attorney's Office Vehicles, reserve parking for
Area designated 17.71.010
Cruising
Definitions 17.55.010
Exceptions 17.55.040
Penalty for violation 17.55.050
Prohibited, cruising 17.55.020
Temporary designated areas 17.55.030
Disabled persons, parking for
Nonresidential disabled parking space permit
Application 17.76.030
Renewal and fee 17.76.035
Parking meter exemption
Appeal of permit refusal 17.76.070
Disabled permit required 17.76.060
Permit issuance standards 17.76.050
Penalty for violation 17.76.040
Personal residence
No parking without permit 17.76.100
Permit issuance 17.76.080
Posting of signs 17.76.090
Removal of any residential disabled parking space and cancellation of permit 17.76.110
Residential disabled parking space permit
Application 17.76.020
Renewal and fee 17.76.025
Use of parking spaces for the disabled 17.76.010
Division of Health employees, parking for
Display of placard 17.96.020
Parking without payment of meter—When 17.96.010
Excise Division Investigators, parking for
Allowed in no parking zones—Exceptions 17.75.010
Authorized placard display required—Exclusive issuance 17.75.020

VEHICLES AND TRAFFIC (Cont'd.)
Facilitate violations, motor vehicles used to
Conditions for release of vehicle 17.94.030
Court date 17.94.020
Redemption—Disposal 17.94.040
To be towed 17.94.010
Forest and Wilmore Parks, parking in
McKinley Drive, parking on—Permit
Issuance 17.70.040
Required 17.70.030
Only in designated areas on McKinley Drive, parking 17.70.060
Parking limitations in Forest Park 17.70.010
Section 17.70.010—Penalty, violation of 17.70.020
Violation of Sections 17.70.030 through 17.70.060—Penalty 17.70.070
Visitors' parking area on McKinley Drive 17.70.050
Washington Drive Circle, parking on—Permit
Issuance 17.70.090
Required 17.70.080
General penalty
Minor traffic violations and graduated penalty violations 1.12.045
Grounds of Juvenile Detention Center, parking of vehicles on
Area designated 17.60.010
Effect 17.60.020
Penalty for violation 17.60.040
Permit required 17.60.030
Incapacitation of vehicles by City—Parking violations
Administrative fee assessed in addition to towing or storage costs 17.63.030
Authority 17.63.010
Notice to owner of stolen vehicle 17.63.050
Recovery of stolen vehicles, administrative fee for 17.63.060
Towing or storage fee for stolen automobiles 17.63.040
Unauthorized removal prohibited—Penalty for violation 17.63.020
Kingshighway Memorial Boulevard, traffic and parking regulations for
Certain trucks prohibited; exceptions 17.210.010
Parking prohibitions 17.210.020
Kingsway East, Kingsway West, Penrose, and Mark Twain Neighborhoods, alleys in
Definitions 17.205.010
Penalty 17.205.040
Posting 17.205.030
Restriction 17.205.020

VEHICLES AND TRAFFIC (Cont'd.)
Laclede-Forest Park-Newstead Parking District 17-102-010 et seq.
See: LACLEDE-FOREST PARK-NEWSTEAD PARKING DISTRICT
Limited access streets
Access streets enumerated 17.64.020
Barricades 17.64.030
Hall Street Industrial Highway 17.64.010
Violation—Penalty 17.64.040
Locust Street, restricted use on
Authorized vehicles defined 17.66.010
Bus lane 17.66.030
Hours 17.66.020
Maryland Avenue Parking District 17.95.010 et seq.
See: MARYLAND AVENUE PARKING DISTRICT
Medical Examiners' vehicles, parking of
Allowed where 17.98.030
Display of placards 17.98.040
Penalties designated 17.98.060
Placards 17.98.020
Prohibited where 17.98.010
Unlawful possession of placards 17.98.050
Mel Carnahan Courthouse, parking around
Authority to revoke permits 17.97.040
Display of placards 17.97.020
Penalty for violation 17.97.030
Restricted parking area designated 17.97.010
Meramec Street, commercial vehicle traffic along
Definitions 17.215.010
Restricted right-of-way 17.215.020
Signage 17.215.030
Violations 17.215.040
Miscellaneous provisions. See herein specific subjects
Neighborhood Stabilization Officers and Business Assistance Specialists, parking for
Allowed in no parking zones—Exceptions 17.79.010
Authorized placard display required—Exclusive issuance—Ticket cancellation 17.79.020
Placard to display ordinance number—Duplication prohibited 17.79.030
Neighborhood traffic safety improvement fund
Collection of funds 17.220.020
Definitions 17.220.010
Reporting 17.220.040
Usage of funds 17.220.030
Noise, vehicle
Definitions 17.78.010
Excessive noise prohibited 17.78.030
Exemptions 17.78.050
Lindell Boulevard and Newstead Avenue Exemptions 17.78.080

VEHICLES AND TRAFFIC (Cont'd.)
Noise, vehicle (Cont'd.)
Lindell Boulevard and Newstead Avenue (Cont'd.)
Restrictions 17.78.070
Penalty for violation 17.78.060, 17.78.100
Sign placement 17.78.090
Sound measurement 17.78.020
Violations designated 17.78.040
N. Euclid Avenue, prohibiting parking on parts of
Prohibition 17.207.010
Operation of all-terrain vehicles
Motorized recreational vehicles
Dealers, ordinance posted by 17.195.040
Fuel sales 17.195.050
Prohibited, operation of 17.195.020
Violations 17.195.030
Operation of motor vehicles without maintaining financial responsibility
Failure to exhibit proof 17.53.060
Financial responsibility—Defined 17.53.030
Insurance identification card—Counterfeiting 17.53.065
Prohibited—Operation of vehicle without financial responsibility 17.53.010
Proof of financial responsibility 17.53.040
Required—Proof of financial responsibility 17.53.020
To be produced on demand—Proof of financial responsibility 17.53.050
Overdimensional vehicles
Annual fee and annual charge 17.74.040
Definitions 17.74.010
Insurance requirements 17.74.050
License decal display 17.74.060
Penalty for violation 17.74.070
Permit
Application—Issuance conditions 17.74.030
For travel on truck routes 17.74.020
Overnight parking of recreational vehicles
Parking facility—Area designated 17.80.010
Rules and regulations 17.80.030
Schedule of charges—Disposition of revenue 17.80.020
Parking Commission Finance Corporation 17.99.010 et seq.
See: PARKING COMMISSION FINANCE CORPORATION
Parking meters 17.62.010 et seq.
See: PARKING METERS
Parking-stacking devices
Definitions 17.88.010
Prohibited 17.88.020

VEHICLES AND TRAFFIC (Cont'd.)
Pedestrian travel
Exclusive pedestrian travel—On certain alley designated 17.50.010
Placement of barricades and curbing 17.50.020
Police vehicles, reserve parking for
Accomac Street 17.72.020
Area designated 17.72.010
Bingham Street 17.72.030
Recreational motor vehicles, parking of
Parking prohibited 17.73.020
Penalty for violation 17.73.030
Sixty-minute limit 17.73.010
Regulation of trucks by weight
Limitation on trucks over certain weight—Areas designated 17.68.010
Proof of loading, unloading or servicing documentation—Required 17.68.020
Violation—Penalty 17.68.030
Repossession of vehicles
Report 17.54.010
Violation—Penalty 17.54.020
Residential parking districts
1600 Block of Belt Avenue
Definitions 17.115.010
Designation of residential parking zones 17.115.020
Issuance, permit 17.115.040
Penalty for violation 17.115.050
Permit use 17.115.030
2200 Block of Cherokee Street
Definitions 17.155.010
Designation of residential parking zones 17.155.020
Issuance, permit 17.155.040
Penalty for violation 17.155.050
Permit use 17.155.030
2200 Block of Thurman Avenue
Definitions 17.120.010
Designation of residential parking zones 17.120.020
Issuance, permit 17.120.040
Penalty for violation 17.120.050
Permit use 17.120.030
4200—4400 Blocks of North Euclid Avenue
Definitions 17.125.010
Designation of residential parking zones 17.125.020
Issuance, permit 17.125.040
Penalty for violation 17.125.050
Permit use 17.125.030
4500 Gibson Avenue
Definitions 17.145.010

VEHICLES AND TRAFFIC (Cont'd.)
Residential parking districts (Cont'd.)
4500 Gibson Avenue (Cont'd.)
Designation of residential parking zones 17.145.020
Disabled parking 17.145.050
Issuance, permit 17.145.040
Penalty for violation 17.145.060
Permit use 17.145.030
4500 Wichita Avenue
Definitions 17.150.010
Designation of residential parking zones 17.150.020
Disabled parking 17.150.050
Issuance, permit 17.150.040
Penalty for violation 17.150.060
Permit use 17.150.030
5000 Block of Maffitt Avenue
Definitions 17.130.010
Designation of residential parking zones 17.130.020
Issuance, permit 17.130.040
Penalty for violation 17.130.050
Permit use 17.130.030
5700 Walsh Street residential parking district
Definitions 17.175.010
Designation of restricted parking zone 17.175.030
District established 17.175.020
Penalty for violations 17.175.060
Permit use 17.175.040
Permits 17.175.050
5800 Block of St. Louis
Definitions 17.110.010
Designation of residential parking zones 17.110.020
Issuance, permit 17.110.040
Penalty for violation 17.110.050
Permit use 17.110.030
Buckingham Court
Definitions 17.101.010
Designation of residential parking zones 17.101.020
Disabled parking 17.101.050
Issuance, permit 17.101.030
Penalty for violation 17.101.060
Permit use 17.101.040
Central West End North
Definitions 17.90.010
Designation of residential parking zones 17.90.020
Issuance, permit 17.90.040
Penalty for violation 17.90.050
Permit use 17.90.030

VEHICLES AND TRAFFIC (Cont'd.)
Residential parking districts (Cont'd.)
Ford Building
Definitions 17.106.010
Designation of residential parking zones 17.106.020
Disabled parking 17.106.050
Issuance, permit 17.106.040
Penalty for violation 17.106.060
Permit use 17.106.030
Forest Park Southeast
Definitions 17.103.010
Designation of restricted parking zone 17.103.020
Disabled parking 17.103.040
Penalty for violation 17.103.050
Permit use 17.103.030
Gerhart Lofts Building
Definitions 17.160.010
Designation of residential parking zones 17.160.020
Disabled parking 17.160.050
Issuance, permit 17.160.030
Penalty for violation 17.160.060
Permit use 17.160.040
Hartford Street
Definitions 17.91.010
Designation of residential parking zones 17.91.020
Issuance, permit 17.91.040
Penalty for violation 17.91.050
Permit use 17.91.030
Maryland Avenue
Definitions 17.95.010
Designation of residential parking zones 17.95.020
Issuance 17.95.040
Penalty for violation 17.95.050
Permit use 17.95.030
O'Fallon Park/West Florissant
Definitions 17.100.010
Designation of residential parking zones 17.100.020
Disabled parking 17.100.050
Issuance, permit 17.100.040
Penalty for violation 17.100.060
Permit use 17.100.030
Third Ward
Definitions 17.200.010
Designation of restricted parking zone 17.200.030
Established 17.200.020
Parking 17.200.060
Penalty for violations 17.200.080
Permit use 17.200.070

VEHICLES AND TRAFFIC (Cont'd.)
Residential parking districts (Cont'd.)
Third Ward (Cont'd.)
Permits 17.200.050
Signs 17.200.040
Waterman/DeGiverville
Definitions 17.92.010
Designation of residential parking zones 17.92.020
Issuance, permit 17.92.040
Penalty for violation 17.92.050
Permit use 17.92.030
Rutger Street, parking on
Parking prohibited where 17.61.010
Permits for patients of Renal Dialysis 17.61.030
Sign installations 17.61.020
Safety belts
Passenger car defined 17.84.010
Penalty for violation 17.84.030
Required, safety belts 17.84.020
Skinker-Fauquier Parking District 17.180.010 et seq.
See: SKINKER-FAUQUIER PARKING DISTRICT
Space requirements for disabled parking
Improper use of spaces—Penalty 17.77.030
Location and marking 17.77.020
Parking spaces for persons with disabilities 17.77.010
Third ward, parking in the
Designated blocks 17.93.010
Parking restrictions 17.93.020
Third Ward Residential Speed Limit District
Definitions 17.195.010
Established; description 17.190.010
Traffic Code 17.02.010 et seq.
See: TRAFFIC CODE
Transporting flammable liquids, vehicles
Hours of operation restricted in designated area 17.69.010
Penalty for violation 17.69.020
Underneath City Hall and Municipal Courts Building, parking of vehicles
Area designated 17.58.010
Penalty—Violation 17.58.050
Permit required 17.58.020
Violation tag
Contents—Fine 17.58.040
Issuance 17.58.030
Vehicle licenses
Colors of various lamps—Restriction of red lights 17.52.350
Commercial motor vehicles licensed for 12,000 pounds or less—Owner's name displayed—When 17.52.340

VEHICLES AND TRAFFIC (Cont'd.)
Vehicle licenses (Cont'd.)
Counterfeiting emblems and plates 17.52.170
Dealer plates
Application 17.52.200
Issuance 17.52.210
Display of registered numbers for vehicles other than motor vehicles 17.52.020
Driving while license or driving privilege is canceled, suspended or revoked 17.52.285
Exception to Sections 17.52.090—17.52.180 17.52.190
Exemptions from license law 17.52.280
License fees for motor vehicles and trailers 17.52.040B
Loads of cargo on motor vehicles 17.52.330
Method of displaying license plates 17.52.300
Motor vehicle license
Application 17.52.060
Emblem
Cost—New 17.52.160
Destruction upon sale or transfer of motor vehicle 17.52.130
Display 17.52.100
Issuance—Specifications 17.52.090
New—Issuance 17.52.150
Nontransferable 17.52.140
Not affixed—Penalty 17.52.120
Use of stolen emblem 17.52.110
Fees prorated 17.52.050
Violation notices
Contents 17.52.230
Fines 17.52.240
Issuance 17.52.220
Penalty for violation 17.52.250
Motorcycle licenses 17.52.180
Operation of motor vehicle without proper license prohibited—Motorcycles special license 17.52.270
Penalty for violation 17.52.360
Required, state vehicle license plates 17.52.290
Safety inspection required, state motor vehicle 17.52.310
State registration number plate
Counterfeiting 17.52.080
Required 17.52.070
Tax, motor vehicle license 17.52.040A
Unauthorized plates, tags, stickers, signs 17.52.320
Vehicle Towing Code 17.56.010 et seq.
See: VEHICLE TOWING CODE
Vista Avenue Residential Parking District
Definitions 17.225.010
Designation of restricted parking zone 17.225.020
Disabled parking 17.225.040

VEHICLES AND TRAFFIC (Cont'd.)
Vista Avenue Residential Parking District (Cont'd.)
Penalty for violation 17.225.050
Permit use 17.225.030
West Park Avenue, commercial vehicles prohibited along part of
Definitions 17.185.010
Exception 17.185.030
Restricted right-of-way 17.185.020
Signage 17.185.040
Violations 17.185.050
Wireless telephones
Definition 17.83.010
Exception 17.83.030
Prohibited 17.83.020

VENDORS
Applicability 8.108A.040
Definitions 8.108A.010
Districts designated 8.108A.030
Festival vendors
Additional license and permit requirements 8.108A.230
Exemptions 8.108A.190
License
Application 8.108A.180
Contents 8.108A.210
Term 8.108A.200
Registration in advance 8.108A.220
Sampling prohibited within festival areas 8.108A.235
General provisions
Applicability
Sellers of farm produce or products or seller's employees 8.108A.340
Soulard Market vendors—contracted to concessionaires 8.108A.320
Distribution of written or printed matter 8.108A.330
Penalty 8.108A.360
Revocation of license 8.108A.370
Violation of chapter—confiscation and release of goods 8.108A.350
Itinerant vendors
Applicability of part 8.108A.280
License
Application 8.108A.240
Term 8.108A.250
Transferal prohibited 8.108A.260
Limitations on applicability 8.108A.290
Rules and regulations
For city parks vending districts 8.108A.310
For downtown vending district 8.108A.300
Temporary association with local dealer 8.108A.270
Prohibited—exceptions 8.108A.020

VENDORS (Cont'd.)
Sidewalk and vehicle vendors
Additional permit requirements 8.108A.140
Licensed vendor's vehicles 8.108A.170
License
Application 8.108A.120
Term 8.108A.130
Transferal prohibited 8.108A.160
Rules and regulations 8.108A.150
Vendors at fairs and festivals
Certificate of registration—Validity 8.109.020
Contents, registration 8.109.030
Display of certificate 8.109.050
License and permit requirements 8.109.070
Registration in advance 8.109.060
Required, registration 8.109.010
Waiver of registration fee—License holder 8.109.040
Vendors license
Applicability of health code—inspection 8.108A.100
Application—contents 8.108A.060
Corporate applicant qualifications 8.108A.090
Health inspections and analysis 8.108A.110
Identification certificate—application—contents 8.108A.080
Issuance of license—contents—exhibition 8.108A.070
Vending business—permitted—license required 8.108A.050

VICTIMS OF DOMESTIC VIOLENCE FUND
Fees collected—Monthly report required 5.53.030
Special fund created—Payment and disbursement—Administration 5.53.020
Surcharge imposed 5.53.010

— W —

WATER
Abuse of water privileges
Misuse of water—Abusing waterworks 23.10.040
Requires meter, abuse 23.10.010
Use of meter to determine excessive water use 23.10.020
Water shut off 23.10.030
Access to meters
Accessibility 23.08.020
Right of entry 23.08.010
Attachments, water pipe
Accessibility—Stop boxes over shut off valves 23.04.185
Bonded plumbers to procure permit 23.04.030
Boxes, stop 23.04.180
Building construction, service during 23.04.160
By whom performed 23.04.072

WATER (Cont'd.)
Attachments, water pipe (Cont'd.)
Cement mortar lining 23.04.215
Effective date 23.04.073
Excavation, backfilling and pavement replacement, permits 23.04.218
Fire protection connections 23.04.220
Fittings 23.04.212
How made—Service pipe repairs 23.04.070
Installation, pipe 23.04.216
Lawn sprinklers 23.04.225
Licenses and permits expense 23.04.079.5
Meter boxes and valve boxes 23.04.217
Nonissuance of tap permits 23.04.240
Payment 23.04.071
Permit
Application 23.04.040
Restrictions on granting 23.04.060
When issued 23.04.050
Person making attachments to give bond 23.04.020
Pipe specifications 23.04.211
Plumber to shut off water in new building after testing 23.04.190
Polyethylene encasement 23.04.214
Regulations for large connections, six-inch and larger 23.04.210
Rubber gasket joints 23.04.213
Service pipes
Laying 23.04.110
Sewer trench, laying in 23.04.130
Specifications 23.04.120
Severability 23.04.074
Shutoff fee 23.04.200
Stopcocks 23.04.150
Surcharge for leak repair
Contracting
Minority participation 23.04.079.3
Wards designated 23.04.079.2
Effective date 23.04.076
Fee waiver 23.04.078
Leak determination 23.04.079.4
Levied 23.04.075
Receipts, report of 23.04.079
Report review—Surcharge increase 23.04.079.1
Special account established 23.04.077
Taps
Furnished by Commissioner—Who may tap pipes—Size 23.04.080
General regulations 23.04.090
Price 23.04.100
Temporary service pipes 23.04.140
Waste cock, stop and 23.04.170
Water Division to enforce rules 23.04.010

WATER (Cont'd.)
Attachments, water pipe (Cont'd.)
Weekly report by plumbers 23.04.230
Bills, water
Advance payment 23.06.040
Continued service, deposit for 23.06.076
Definitions 23.06.010
Delinquent consumer at new location 23.06.150
Deposits in advance 23.06.070
Districts 23.06.050
Due dates 23.06.060
Establishment of credit 23.06.073
Flat rate assessment—Second bill 23.06.110
Generally 23.06.020
Interest to be paid 23.06.071
Liens 23.06.170
Main pipe cut off 23.06.140
Rebate
Premises destroyed by fire 23.06.100
Vacating premises 23.06.080
When not allowed 23.06.090
Receipt of payment 23.06.075
Records 23.06.074
Refund on termination 23.06.072
Reinspection for correction 23.06.030
Repair charges 23.06.120
Turning on shut off water 23.06.160
Certain lot owners, water for
Application 23.22.020
Water for certain specified lot owners 23.22.010
Flat rates for water
Definitions and inflation adjustment 23.16.025
Flat rates 23.16.040
Penalty for violation 23.16.090
Permitted uses 23.16.010
Persons ineligible for flat rates 23.16.060
Water turn-on service charge 23.16.020
Meter rates for water
Assessed on total at one location 23.18.050
Definitions and inflation adjustment 23.18.015
Rates, metered 23.18.070
Request for meter 23.18.010
Required users 23.18.030
Separate meters 23.18.040
Street railways and railroads 23.18.060
Water Commissioner, meters placed at order of 23.18.020
Public or charitable institutions or hospitals, meter rates for
Definitions and inflation adjustment 23.20.015
Meters in public institutions 23.20.010
School rates 23.20.030

WATER (Cont'd.)
Public or charitable institutions or hospitals, meter rates for (Cont'd.)
Special rates in hospitals or charitable institutions 23.20.020
Zoological parks 23.20.040
Repairs, water connection
Notice to repair 23.12.020
Reconnection 23.12.030
Required, repair 23.12.010
Tampering with fire hydrants
Liability of parent or guardian 23.11.040
Permit required 23.11.010
Prohibited acts 23.11.020
Responsibility of parent or guardian 23.11.030
Use of neighbor's water
Drinking fountains, use of 23.14.030
Duties of police 23.14.040
Permission required 23.14.010
Without permission, use 23.14.020
Water Division 23.02.010 et seq.
See: WATER DIVISION

WATER DIVISION
Composition 23.02.020
Distribution Section Engineer 23.02.050
Operating Section Engineer 23.02.040
Supply and Purifying Section Engineer 23.02.030
Water Commissioner 23.02.010

WATER WORKS REVENUE FUND TAX
Levied 23.38.010
Payment 23.38.020

WEAPONS
Carrying weapons
By persons guilty of a breach of the peace 15.130.020
By persons who are subject to restraining order 15.130.090
Concealed weapons 15.130.010
Exposed in whole or in part 15.130.040
Felon possessing gun 15.130.030
Law enforcement officials 15.130.060
Penalty for violation 15.130.070
Unlawful possession of a handgun by a minor 15.130.080
Unloaded or secured 15.130.050
Concealed carry of firearms
Enforcement policy 15.137.010
Penalty for violations 15.137.020
Record keeping and annual reporting 15.137.030
Unlawful display of a weapon 15.137.040

WEAPONS (Cont'd.)
Concealed firearms
Airport—Concealed firearms 15.131.020
Areas, prohibited—Airport 15.131.030
Exemptions 15.131.070
General—Notification 15.131.040
Notification—Airport 15.131.050
Penalty for violation 15.131.060
Prohibited 15.131.010
Firearms use restricted
Discharging 15.132.010
Left in unattended vehicles, firearms
Penalty for violation 15.133.030
Provisions re 15.133.010
Rebuttable presumption 15.133.040
Reporting of stolen or lost firearms required 15.133.020
Martial arts weapons
Nunchaku—Prohibited—Exceptions 15.136.010
Penalty for violation 15.136.030
Throwing stars—Prohibited 15.136.020
Projectile weapons
Definitions 15.135.010
Penalty for violation 15.135.040
Possession 15.135.030
Sale to minors 15.135.020
Unlawful discharge of a firearm
Exceptions 15.139.020
Generally 15.139.010
Penalty provisions 15.139.030
Reporting 15.139.040
Unlawful open carry of a weapon
Exceptions 15.138.010
Penalties for violations 15.138.020
Use of force policy
Ban on chokeholds and strangleholds 15.185.010
Ban on no-knock warrants for drug cases 15.185.050
Comprehensive reporting requirements 15.185.040
Duty to intervene policy 15.185.030
Requirement for de-escalation tactics 15.185.020
Use, purchase or possession of certain weapons by minors
Parental consent 15.134.030
Possession or discharging 15.134.010
Sale of weapons 15.134.020
Slingshots 15.134.040

WEEDS
Abatement procedure
Authority 11.04.080
Designated 11.04.090
Record required 11.04.100
Billing for costs—Abatement 11.04.110

WEEDS (Cont'd.)
Definitions 11.04.020
Enforcement 11.04.130
Findings 11.04.010
Notification of Alderman of ward 11.04.120
Penalty for violation 11.04.140
Property owner, notice to 11.04.070
Provisions to govern abatement proceedings 11.04.030
Public nuisance
Danger to public health 11.04.050
Debris and materials 11.04.060
Vegetation designation 11.04.040

WEIGHERS
Acting as weigher at scales not named in bond 9.24.040
Blank weight certificates 9.24.060
Bond—Qualifications—Revocation 9.24.010
Breaches of bond 9.24.070
Compliance when weighing vehicles—Vehicle defined 9.24.100
Duty 9.24.050
Forfeiture of position 9.24.080
Gross and tare weights and net weight of delivered commodity 9.24.090
Written statement
Contents 9.24.030
Ownership—Surety 9.24.020

WEIGHTS AND MEASURES
Commodities, method of sale
Measures 9.16.010
Definitions and general provisions
City standards 9.02.050
Definitions 9.02.010
Field standards and equipment 9.02.060
Fractional parts of units 9.02.040
Inspection
Certificates—Suspension of Commissioner 9.02.120
Commissioner's duties 9.02.110
Devices enumerated 9.02.090
Generally 9.02.070
Refusal—Certificates 9.02.080
Special units of measures defined 9.02.030
Systems in use 9.02.020
Tanks and meters 9.02.100
Division of Weights and Measures 9.12.010 et seq.
See: DIVISION OF WEIGHTS AND MEASURES
Ice, avoirdupois
Block ice 9.06.010
Crushed ice or ice cubes 9.06.020
Inspection of scales and measures
Commissioner's police powers 9.14.090

WEIGHTS AND MEASURES (Cont'd.)
Inspection of scales and measures (Cont'd.)
Correct and incorrect apparatus—Seal—Seizures 9.14.050
Duty of owners 9.14.100
Fees 9.14.010
Incorrect apparatus
Decision review 9.14.080
Destruction 9.14.070
Hearing 9.14.060
Investigations 9.14.020
Package inspection 9.14.030
Stop use, stop removal, and removal orders 9.14.040
Packages, tolerances
Business address 9.18.030
Declarations required 9.18.010
Exemptions, name and address 9.18.200
Language 9.18.220
Name of manufacturer, packer, or distributor 9.18.020
Principal place of business 9.18.040
Prominence of declarations and statements 9.18.210
Quantity statement
Commodity only 9.18.050
Exemptions 9.18.190
Expression 9.18.060
Fractions
Custom 9.18.140
Expression 9.18.130
General use 9.18.120
Minimum or actual quantity 9.18.150
Supplement
Metric 9.18.090
Numerical count 9.18.100
Weight or measure 9.18.110
Terms
Defined 9.18.080
Qualification 9.18.070
Variations
Actual quantity, declared 9.18.170
Declared minimum quantity 9.18.160
Tolerances 9.18.180
Penalties
Hindering or obstructing officer 9.10.010
Impersonation of officer 9.10.030
Interfering with scales or weighers 9.10.020
Offenses 9.10.040
Person weigher scales
Regulations 9.08.010
Products and commodities
Berries and small fruits 9.22.090
Bread 9.22.040
Butter, oleomargarine, and margarine 9.22.050

WEIGHTS AND MEASURES (Cont'd.)
Products and commodities (Cont'd.)
Flour, corn meal, and hominy grits 9.22.070
Fluid dairy products 9.22.060
Meat, meat products, fish, poultry and wild game 9.22.030
Misrepresentation of price 9.22.020
Sale by net weight or measure 9.22.010
Textile products 9.22.080
Solid fuel
Articles not weighed at authorized scales 9.04.070
Delivery hours 9.04.090
Disposing of part of load—Altering certificate 9.04.050
False certificate 9.04.060
Fees for weighing—Charging improper fees, etc.—Penalty for violation 9.04.040
Fuel wood sales 9.04.020
Loaded vehicles, weighing 9.04.110
Sold in baskets 9.04.010
Tolerances 9.04.030
Unweighed fuel 9.04.080
Weighing empty vehicles 9.04.100
Unit price, packages
Commodity in package form defined 9.20.030
Misleading packages 9.20.020
Random packages 9.20.010
Weighers 9.24.010 et seq.
See: WEIGHERS

WHARF VENDING DISTRICT
Description of wharf area subject to this chapter 21.40.010
Prohibition and penalty 21.40.050
Riverfront Vending Committee 21.40.020
Riverfront Wharf Revitalization Fund 21.40.040
Rules and Regulations for the Wharf Vending District 21.40.030

WHISTLEBLOWER LAW
Definitions 15.14.020
Penalties 15.14.070
Procedures, Reporting 15.14.030
Protections 15.14.040
Remedies 15.14.050
Reporting retaliation 15.14.060
Title 15.14.010

WILD ANIMALS
Declaration of nuisance 10.24.020
Disposal of impounded animal—Payment of costs 10.24.050
Exceptions 10.24.060
Impoundment 10.24.030

WILD ANIMALS (Cont'd.)
List of institutions to capture, board or dispose of animals 10.24.040
Penalty for violation 10.24.080
Prohibited animals designated 10.24.010
Seller to notify purchaser of this chapter 10.24.070

WRECKERS
Applicability of chapter 8.110.280
Change of address 8.110.240
Contracts 8.110.210
Definitions 8.110.010
Filing 8.110.130
Insurance or bond 8.110.220
License
Application 8.110.030
Hearing for revocation or suspension 8.110.110
Investigation of applicant 8.110.040
Misrepresentation in application 8.110.100
Operating under suspension 8.110.090
Required—Display 8.110.020
Revocation 8.110.080
Suspension 8.110.070
Transfer 8.110.060
Penalty for violation 8.110.290
Provision for release of towed cars 8.110.275
Removal of vehicle in serious accident 8.110.260
Restrictions on actions of operators 8.110.230
Schedule
Additional information 8.110.170
Charges in excess 8.110.160
Customer form
Contents 8.110.140
Retention time period 8.110.150
Short wave radio receiver 8.110.270
Signs on vehicle 8.110.120
Statements
Information 8.110.190
Original to customer 8.110.180
Retention of duplicate 8.110.200
To be present only on request, wrecker 8.110.250
Towing from certain private property 8.110.235

WRITING
Definitions and rules of construction 1.08.280

WRITS, WARRANTS AND OTHER LEGAL PROCESSES
General penalty 1.12.020 et seq.
See: GENERAL PENALTY

— Y —

YEAR
Definitions and rules of construction 1.08.290

YOUTH COUNCIL
Compensation 3.155.040
Confirmation and term of office 3.155.030
Creation 3.155.010
Membership 3.155.020
Officers and rules 3.155.050
Purpose and duties 3.155.060

YOUTH SERVICES
Board 3.36.590
Commissioner 3.36.585
Created—Duties 3.36.580

— Z —

ZONING (Title 26)
"A" Single-Family Dwelling District
Conditional uses 26.20.025
Density of population 26.20.090
District regulations 26.20.010
Front yard 26.20.060
Height regulations 26.20.050
Hospitals, parking for 26.20.035
Multiple dwellings, parking for 26.20.030
Parking for places of assembly 26.20.040
Rear yard 26.20.080
Side yard 26.20.070
Site requirements for accessory dwelling units 26.20.021
Use regulations 26.20.020
"B" Two-Family Dwelling District
Conditional uses 26.24.025
Density of population 26.24.080
District regulations 26.24.010
Front yard 26.24.050
Height regulations 26.24.040
Parking regulations 26.24.030
Rear yard 26.24.070
Side yard 26.24.060
Use regulations 26.24.020
"C" Multiple-Family Dwelling District
Conditional uses 26.28.025
Density of population 26.28.090
District regulations 26.28.010
Front yard area 26.28.060
Height regulations 26.28.050
Parking space 26.28.040
Rear yard 26.28.080
Regulations, parking 26.28.030
Side yard 26.28.070
Use regulations 26.28.020
"D" Multiple-Family Dwelling District
Conditional uses 26.32.025
Density of population 26.32.090
ZONING (Title 26) (Cont'd.)
"D" Multiple-Family Dwelling District (Cont'd.)
District regulations 26.32.010
Front yard area 26.32.060
Height regulations 26.32.050
Hotels, parking at 26.32.045
Purpose 26.32.015
Rear yard 26.32.080
Regulations, parking 26.32.030
Side yard 26.32.070
Use regulations 26.32.020
"E" Multiple-Family Dwelling District
Conditional uses 26.36.025
Density of population 26.36.100
District regulations 26.36.010
Front yard areas 26.36.070
Height regulations 26.36.060
Hotels, parking at 26.36.040
Loading at hotels 26.36.050
Parking regulations 26.36.030
Purpose 26.36.015
Rear yard 26.36.090
Side yard 26.36.080
Use regulations 26.36.020
"F" Neighborhood Commercial District
Carry-out restaurants, site requirements for 26.40.026
Conditional uses 26.40.025
Density of population 26.40.100
District regulations 26.40.010
Front yard area 26.40.070
Height regulations 26.40.050
Parking regulations 26.40.030
Purpose 26.40.015
Rear yard 26.40.090
Side yard 26.40.080
Site requirement for motor fuel pumping stations 26.40.027
Specific parking and loading regulations 26.40.040
Use regulations 26.40.020
"G" Local Commercial and Office District
Area dwellings 26.44.060
Conditional uses 26.44.025
District regulations 26.44.010
Front yard—Nondwellings 26.44.070
Height regulations 26.44.050
Parking and loading regulations 26.44.030
Purposes 26.44.015
Side yard—Nondwellings 26.44.080
Specific parking and loading regulations 26.44.040
Use regulations 26.44.020
"H" Area Commercial District
Area regulations 26.48.050

ZONING (Title 26) (Cont'd.)
"H" Area Commercial District (Cont'd.)
Conditional uses 26.48.025
District regulations 26.48.010
Height regulations 26.48.040
Parking and loading regulations 26.48.030
Purpose 26.48.015
Use regulations 26.48.020
"I" Central Business District
Area regulations 26.52.050
Conditional uses 26.52.025
District regulations 26.52.010
Height regulations 26.52.040
Parking and loading regulations 26.52.030
Use regulations 26.52.020
"J" Industrial District
Area regulations 26.56.050
Conditional uses 26.56.025
District regulations 26.56.010
Height regulations 26.56.040
Parking and loading regulations 26.56.030
Use regulations 26.56.020
"K" Unrestricted District
Area regulations 26.60.050
Conditional uses 26.60.025
District regulations 26.60.010
Height regulations 26.60.040
Parking and loading regulations 26.60.030
Use regulations 26.60.020
"L" Jefferson Memorial District
Area regulations 26.64.050
Conditional uses 26.64.025
District regulations 26.64.010
Height regulations 26.64.040
Parking and loading regulations 26.64.030
Use regulations 26.64.020
Bed and Breakfast Districts
Declaration—Filing of copies 26.66.020
Effect of district designation 26.66.030
Establishment procedure 26.66.010
Extension of protested license 26.66.100
Hearing on protest—Notice—Procedure 26.66.070
License approval—Generally 26.66.040
Petitions, protest—Contents—Time for collection of signatures 26.66.060
Protests
Allocation of burden of proof—Grounds for sustaining protests—Effect of sustaining protest 26.66.090
Necessity of majority of signatures on petition protecting continuation of license—Effect 26.66.080

ZONING (Title 26) (Cont'd.)
Bed and Breakfast Districts (Cont'd.)
When and how initiated—Protests against licenses or applications 26.66.050
Withdrawal of signatures from protest petitions 26.66.110
Board of Adjustment
Appeals 26.84.040
Established, board 26.84.010
Jurisdiction 26.84.050
Meetings 26.84.030
Notice required of Board 26.84.045
Rules and regulations 26.84.020
Changes and amendments
Action by Board of Aldermen 26.92.030
Initiation of change 26.92.010
Notice of proposed change 26.92.040
Petition procedure 26.92.020
Citation and purpose
Acceptance of Act 26.04.020
Interpretation and purpose 26.04.040
Title 26.04.010
Zoning Commission 26.04.030
Comprehensive sign control regulations
All zone districts, signs for and by nonconforming use in 26.68.140
Board-up signage prohibited 26.68.175
Chapter 353 Development Plans, in signage overlay plan districts and signs with special provisions, signs in 26.68.160
Definitions 26.68.020
Historic districts, signs in 26.68.070
Nonconforming signs 26.68.150
Outdoor general advertising devices 26.68.130
Permits required in all districts 26.68.060
Prohibited signs 26.68.170
Purpose 26.68.015
Removal of signs within or on public right-of-way or easement 26.68.180
Scope of chapter 26.68.010
Signs in zone districts
A, B, C, D, and E 26.68.080
F 26.68.090
G and H 26.68.100
I and L 26.68.120
J and K 26.68.110
Substitution clause 26.68.190
Use of signs, prohibited 26.68.135
Vacant City or Land Reutilization Authority of the City of St. Louis-owned properties, signs on 26.68.055
Definitions, zoning
Accessory building 26.08.020

ZONING (Title 26) (Cont'd.)
Definitions, zoning (Cont'd.)
Accessory dwelling unit
Attached 26.08.022
Detached 26.08.023
Accessory use 26.08.025
Alley 26.08.030
Animal clinic 26.08.035
Apartment house 26.08.040
Application of definitions 26.08.010
Basement 26.08.050
Bed and breakfast guesthouse 26.08.053
Bed and breakfast homestay 26.08.056
Bed and breakfast inn 26.08.058
Bicycle parking space 26.08.059
Bicycle rack 26.08.060
Buildable width 26.08.090
Building, height of 26.08.080
Building 26.08.070
Cellar 26.08.100
Check-cashing establishment 26.08.101
Clinic 26.08.103
Conditional use 26.08.104
Convenience store 26.08.104.1
Conversion town house 26.08.105
Creative design rack 26.08.107
Dwelling unit 26.08.115
Dwelling, multiple-family 26.08.150
Dwelling, semi-detached two-family 26.08.140
Dwelling, single-family 26.08.120
Dwelling, two-family 26.08.130
Dwelling 26.08.110
Family 26.08.160
Financial institution 26.08.162
Floor area ratio 26.08.166
Floor area 26.08.165
Frontage 26.08.170
Garage, private 26.08.180
Garage, public 26.08.190
Garage, storage 26.08.200
Garage, warehouse 26.08.210
Guestroom 26.08.230
Home for senior citizens 26.08.245
Home occupation 26.08.240
Hospital 26.08.250
Hotel 26.08.260
Lot, corner 26.08.280
Lot, depth of 26.08.290
Lot, interior 26.08.300
Lot, lines 26.08.310
Lot, through 26.08.320
Lot 26.08.270

ZONING (Title 26) (Cont'd.)
Definitions, zoning (Cont'd.)
Marijuana, marijuana-infused products, medical marijuana cultivation facility, medical marijuana dispensary facility, medical marijuana facility, medical marijuana-infused products manufacturing facility, medical marijuana testing facility, medical marijuana use, comprehensive facility, comprehensive marijuana cultivation facility, comprehensive marijuana dispensary facility, comprehensive marijuana-infused products manufacturing facility, consumer, marijuana accessories, marijuana facility, marijuana microbusiness facility, microbusiness wholesale facility, marijuana testing facility, and preroll 26.08.321
Micro wireless facility 26.08.322
Motor fuel pumping station 26.08.325
Nonconforming structure 26.08.331
Nonconforming use 26.08.330
Package liquor store 26.08.337
Parking lot, commercial 26.08.340
Parking space 26.08.350
Place 26.08.360
Premises 26.08.370
Restaurant, carry-out 26.08.377
Restaurant 26.08.375
Short-term loan establishment 26.08.384
Short-term rental; short-term rental agent; short-term rental, non-occupied; short-term rental, occupied; short-term rental owner; short-term rental permit; short-term rental unit; and dwelling unit 26.08.384.1
Sign 26.08.385
Sleeping room 26.08.387
Small wireless facility 26.08.389
Special residential uses 26.08.389.1
Story, half 26.08.400
Story 26.08.390
Street 26.08.410
Structural alteration 26.08.420
Structure 26.08.430
Telephone, outdoor pay 26.08.432
Tourist home 26.08.433
Town house 26.08.435
Utility stations and utility towers 26.08.436
Wireless facility 26.08.437
Wireless support structure 26.08.438
Yard, front 26.08.450
Yard, rear 26.08.460
Yard, side 26.08.470
Yard 26.08.440
Zoning Administrator 26.08.480

ZONING (Title 26) (Cont'd.)
Districts and boundaries, zoning
Boundary lines 26.12.030
Established, districts 26.12.010
Map, district 26.12.020
Fee schedule
Schedule enumerated 26.98.010
Form-Based Districts
Administration of form-based districts 26.82.080
Amendments 26.82.070
Criteria 26.82.030
Definitions 26.82.020
Minimum requirements 26.82.040
Optional regulatory subjects 26.82.050
Procedures for approval of a form-based district 26.82.060
Purpose 26.82.010
General zoning regulations
Bicycle parking requirements 26.16.085
Changes in nonconforming residential buildings 26.16.065
Comprehensive Sign Control Regulations 26.16.040
Damage to nonconforming building 26.16.070
Discontinuing nonconforming use 26.16.060
Nonconforming use, changes in 26.16.050
Off-street parking and loading requirements 26.16.080
Open storage prohibited 26.16.030
Outdoor drive-in theater in A, B, C, D and E zones 26.16.090
Structures prohibited 26.16.020
Uses prohibited 26.16.010
Marijuana uses
Definitions 26.70.020
Purpose 26.70.010
Site requirements for marijuana facilities 26.70.040
Use regulations for marijuana facilities 26.70.030
Off-street parking and loading in dwelling districts
Entrances and exits 26.74.030
Maintenance requirements 26.74.040
Penalty for violation 26.74.050
Plats, certificates of occupancy and survey fees
Certificates of occupancy—When 26.96.020
Front yard survey 26.96.040
Issuance of certificates of occupancy 26.96.030
Required, plats 26.96.010
Regulated uses
Definitions 26.72.020
Location regulations 26.72.030
Purpose 26.72.010
Waiver provisions 26.72.040
Short-term rental
Definitions 26.76.020

ZONING (Title 26) (Cont'd.)
Short-term rental (Cont'd.)
Purpose 26.76.010
Use regulations for short-term rentals 26.76.030
Special residential uses
Definitions 26.75.020
Operation without compliance prohibited 26.75.055
Purpose 26.75.010
Requirement of operations plan 26.75.050
Site requirements 26.75.040
Use regulations 26.75.030
Special Use Districts
Allowance of new or expanded use within SUD boundaries as conditional use 26.73.020
Prohibit new or expanded use within SUD boundaries 26.73.010
Types of items that may be included in specific SUD ordinance 26.73.030
Use, height and area exceptions
Area exceptions 26.80.040
Community Unit Plan (CUP) 26.80.070
Conditional uses 26.80.010
Height exceptions 26.80.030
Home occupations 26.80.060
Planned transit station area exceptions 26.80.045
Planned unit development district 26.80.050
Violations
Civil remedies 26.100.020
Penalty for violations 26.100.010
Revocation of conditional use permit 26.100.030
Variance, revocation of 26.100.040
Zoning Administrator
Creation and purpose 26.88.010
Duties and authority 26.88.020

ZOOLOGICAL PARK
Name—Location 22.28.010
Prohibited acts 22.28.020